TANZANIA LAW REPORTS

1983 - 1997

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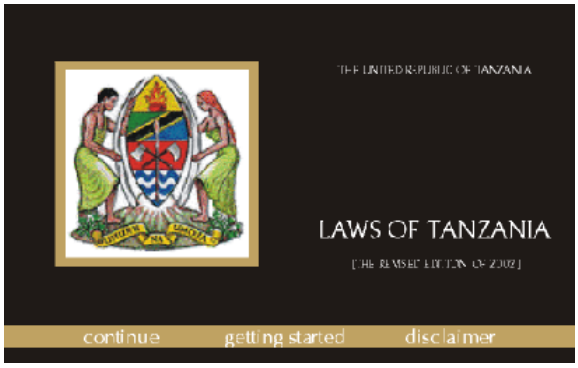

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CHRONOLOGICAL LISTING OF CASES

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1997

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MARUZUKU HAMISI v REPUBLIC 1997 TLR 1 (HC) A

Court High Court of Tanzania - Mwanza
Judge Masanche J

CRIMINAL APPEAL 84 of 1996 B
28 October 1996
Flynote
Criminal law - Theft - Proof of - Doctrine of recent possession - When applicable.
Evidence - Burden of proof - Accused's version has only to raise reasonable doubt. C
-Headnote
The appellant had been convicted of robbing with violence and sentenced to 30 years' imprisonment. The evidence indicated that the complainant had been D attacked in his house at night by a group of people and in the course of the attack the complainant was assaulted with a panga and his bicycle was stolen.Three weeks later the appellant was arrested whilst being in possession of the complainant's bicycle.
Held:

(1) That the appellant had given an explanation to the police as to his E possession of the bicycle: he had said that he had bought it from the eighth accused in the trial;

(2) That the accused's story did not have to be believed but only to raise reasonable doubt. In the present case the appellant gave an explanation and the appeal was accordingly allowed. F

Case Information
Order accordingly.
Cases referred to

1. Hamisi v R [1963] EA 211 G
2. Hassan Madenge v R Criminal Appeal No 50 at 1987 (unreported)
3. Omparkash Gandi v R [1961] EA 643

Rutaisire for the appellant
Mbago for the respondent.
Judgment
Masanche J : H
The appellant, Maruzuku s/o Hamisi, was convicted of robbery with violence contrary to s 285 and 286 of the penal code. He was sentenced to thirty years imprisonment. He now appeals

against both conviction and sentence. It had been alleged that on 23 September 1995, at 3:00 am, the appellant in the company of some I
1997 TLR p2
MASANCHE J
A other people robbed Jafary s/o Paul, PW1, of a bicycle and Shs 20 000/= in cash.
Mr Rutaisire, learned advocate argued for the appellant in the course of the appeal before me. Mr Mbago, learned state attorney argued for the Republic.
B We revisited the evidence that was adduced at the trial. Learned counsels were of the view that as far as this appellant was concerned (and he is the only one who is appealing) he was convicted on the doctrine of recent possession. That doctrine, they argued could not pin down the appellant, as he had given enough explanation for possession of the bicycle.
C It was on 23 September 1995, at 3:00 am, when Jafary Paulo PW1, while sleeping in his house with his wife, a group of people pounced into his house. The wife of Paulo was quick to bolt out. She escaped. The complainant decided to engage one of them, but he was cut with a panga in the process. He abandoned his bravery attempt and fled. D
Later, people were arrested, including the appellant. The appellant was arrested with a bicycle, which, of course, got identified to be that of the complainant. But, and this is where the counsels agree, the appellant gave an explanation of how he got the bicycle. He explained that it was sold to him by the eighth accused in the E trial, and in presence of a witness Issa Ally PW8. The wife of the appellant also witnessed both the bargain and the actual sale. It was the wife who, actually, advised the appellant to go ahead and buy the bicycle. Time between the actual theft of the bicycle and the recovery of the bicycle from the appellant was three F weeks. I agree that there was an explanation here to the possession. Again, the same appellant had given a cautioned statement to the police (Exhibit P4) in which he stated that the bicycle was sold to him by eighth accused in the trial. In the case of Hamisi v R (1), it is stated that: G

`Once the accused has been found in possession of property which may reasonably be suspected of having been stolen or unlawfully obtained, then the burden shifts on him of satisfying the Court as to how he came by the same. But the burden is not a heavy one.' H

The Court of Appeal for Tanzania in the case of Hassan Madenge v R (2), has said that:

`An accused's story does not have to be believed. He is only required to raise reasonable doubt, that is to say, his explanation must be within the compass of the possible in human terms.' I
1997 TLR p3
MASANCHE J
It may also be useful to quote the obiter of Sir Ronald Sinclair CJ, in the case of A Omparkash Gandhi v R (3) at 647 where he says:

`In all these cases [possession cases and receiving cases] the defence is never required to do more than show an explanation which is reasonably possible in the circumstances.' B

Once again, I think the appellant gave an explanation for the possession of the bicycle. This is why I allowed his appeal on 11 October 1996 and set him free. C
1997 TLR p3

SAID JUMA MUSLIM SHEKIMWERI v ATTORNEY-GENERAL 1997 TLR 3 (HC) D

Court High Court of Tanzania - Dar es Salaam
Judge Samatta JK E

MISCELLANEOUS CIVIL CAUSE 3 OF 1996 F
1 November 1996
Flynote
Employment law - Public servant - Dismissal of - When permissible.
-Headnote
The applicant sought an order of certiorari to bring up and quash a decision of the G President of the United Republic `retiring' the applicant, an immigration officer, in the public interest. It appeared that the applicant had been employed by the Government of Tanzania for some years without having been subjected to any disciplinary sanction. The applicant had read a newspaper report of his dismissal for allegedly receiving bribes. About two months later the applicant received a letter informing him of his retirement. H
Held:

(1) The common law principle that a civil servant was dismissible at pleasure of the President was not part of the law of Tanzania;

(2) That the letter informing the applicant of his retirement cited provisions of law which were incompatible and this had caused the applicant considerable embarassment;

(3) Standing Order F35 which provided that all appointments were at the I

A pleasure of the President was invalid as it was in conflict with the provisions of ss 22 and 36(2) of the Constitution;

(4) The only legislative provision which permitted the compulsory retirement was paragraph (d) of section 8 of the Ordinance which would be utilised only for the purpose of facilitating improvements in the organisation of the department to which the civil servant belonged. It was clear that the applicant's removal had not been sought on these grounds. B
Case Information
Application allowed.
Cases referred to:

C 1. James F Gwangilo v Attorney General Civil Case No 23 of 1993 (unreported)
2. Shenton v Smith [1895] AC 229
3. Gould v Stuart [1896] AC 575
D 4. I G Lazaro v Josephine Mgombera Civil Appeal No. 2 of 1986 (unreported)
5. Walsall Overseers v Railway Company [1878] 4 App Cases 30
6. Anisminic v Foreign Compensation Commission [1969] 2 AC 147

Nassoro for the applicant
E Songoro for the respondent.
Judgment
Samatta JK:
F This is an application by way of a chamber summons for an order of certiorari to bring up and quash a decision of the President of the United Republic `retiring' the applicant, who was an Immigration Officer, in the public interest.
The background to the application may, I think, be stated as shortly as is consistent with intelligibility. On 1 June 1984, the applicant was employed by the G Government of Tanzania as an Immigration Assistant. Following a promotion on 1 February 1991, he became an Immigration Officer, Grade III. In the third paragraph of his affidavit supporting the application, the applicant asserts that during the whole of his career in the Civil Service he was never formally warned, reprimanded or in any way penalised for anything done in connection with, or incidental to, the performance of his duties. No information is given in the H counter-affidavit contradictory of this averment. In the 2 June 1995 issue of the Daily News, a government-owned daily newspaper, there appeared an account, among others, to the effect that the then Minister for Home Affairs had sacked twenty eight officials of the Immigration Department, including the applicant, for receiving bribes. Upon I

making inquiries about this story with his superiors the applicant was informed that A the story was essentially false as, among other things, the Minister lacked power in law to make the reported decision. About two months later -- on 4 August 1995, to be more precise -- the applicant received a letter addressed to him by the Acting Principal Secretary (Establishments), whose body reads, in Swahili, as follows: B

`Ninapenda kukurifu kwamba, Mtukufu Rais, amekustaafisha kwa Manufaa ya Umma kuanzia tarehe 20 Julai, 1995. Amekustaafisha kwa mujibu wa Kifungu Na 36(2) cha Katiba ya Jamhuri ya Muungano wa Tanzania ikisomwa pamoja na `Standing Order' Na. F35, 44 na. C 49(c), Kifunga Na. (f) cha Sheria ya Malipo ya Pensheni Sura (371); Kanuni za Utumishi Serikalini 1970 Kanuni Na. 29(2) na Sheria ya Utumishi Serikalini Na 16 ya mwaka 1989 Kifungu Na. 19(3). D

2. Aidha, kutukana na uamuzi huu wa kukustaafisha kwa Manufaa ya Umma, utalipwa Pensheni kwa utumishi wako Serikalini hadi tarehe 20 Julai, 1995.' D

Speaking through his advocate, Mr Nassoro, the applicant says that the President's decision to retire him in the public interest is invalid in law and ought, therefore, to be quashed by this court. Mr Songoro, Senior State Attorney, opposed E the application.
Before dealing with counsel's submissions, it is necessary, I think, to quote in extenso the provisions of law relied upon by the President in reaching his F impugned decision. As expected, I will start with s 36(2) of the Constitution of the United Republic (hereinafter referred to as `the Constitution'). The section reads:

`(2) Subject to the provisions of this Constitution and of any relevant written law, the power to appoint persons to offices in the public services of the United Republic, and the power of promotion, termination of appointment, dismissal and disciplinary control of persons G appointed to those offices shall be exercised by the President, the service commissions and such other authorities as may be specified in respect of any office or category of offices by this Constitution or any relevant written law.' H

Section 8 of the Pensions Ordinance (the Ordinance), as amended by s 6 of the Pensions Laws (Miscellaneous Amendments) Act, 1978, provides:

`8 Subject to the provisions of s 9A, no pension, gratuity or other allowance shall be granted under this Ordinance to any officer except I

A on his retirement from the public service in one of the following cases:

(a) on or after attaining the age of fifty:

Provided that in respect of

(i) officers in the Police Force of the rank of Constable and officers [in] the Prison Service, at the rank of Prison Officer Grade III, this paragraph shall have the effect as if `forty years' were substituted for `fifty years'; and B

(ii) officers in the Police Force above the rank of Constable and of or below the rank of Sergeant and officers in the Prison Service above the rank of Prison Officer, Grade III and of or below the rank of Prison Officer, Grade I, this paragraph shall have the effect as if `forty-five years' were substituted for `fifty years'. C

(b) in the case of transfer to other public service, in circumstances in which he is permitted by the law or regulations of the service in which he is last employed to retire on pension or gratuity: Provided that, if his service is superannuated under the Federated D Superannuation System for universities or similar insurance scheme, he has retired from the public service on one of the grounds mentioned in paragraphs (a), (c), (d), (e) and (f) of this section;

E (c) on the abolition of his office;

(d) on compulsory retirement for the purpose of facilitating improvement in the organisation of the department to which he belongs, by which greater efficiency or economy may be effected;

F (e) on medical evidence to the satisfaction of the appropriate authority that he is incapable by reason of any infirmity of mind or body of discharging the duties of his office and that such infirmity is likely to be permanent;

(f) in the case of removal from the public service in the public interest as provided in this Ordinance;

G (ff) if he retires from the public service with the consent of the President, and the President, by writing under his hand, declares that this paragraph shall apply to him;

(g) on retirement in circumstances, not mentioned in the preceding paragraphs of this section, rendering him eligible for a pension under the Pensions (Governors of Dominions, etc) Acts, 1911 to 1947, of the United Kingdom or any Act amending or replacing those Acts: H

Provided that a gratuity may be granted to a female officer in accordance with the provisions of this Ordinance, who retires for the reason that she has married or is about to marry, notwithstanding that she is not otherwise eligible under this section for the grant of any pension, gratuity or other allowance.' I

1997 TLR p7

SAMATTA JK

Section 19 of the Civil Service Act, 1989, a legislation which repeals and replaces A the Civil Service Act, 1962 (Cap 509), is in the following terms:

`19-(1) The power to dismiss and to terminate the appointment of civil servants shall be exercised in accordance with the provisions of this section. B

(2) The power to dismiss shall not be exercised unless --

(a) a disciplinary charge is preferred against him;

(b) he is afforded an adequate opportunity to answer the charge, and

(c) an inquiry is held into the charge in accordance with regulations made under s 24. C

(3) The President may remove a civil servant from the service of the Republic if he considers it in the public interest so to do.

(4) Nothing in this section shall be construed as restricting --

(a) the compulsory retirement of any person under section 10 or in the paragraph (c), (d) or D (e) of section 8 of the pensions Ordinance, or under the provisions of the Tanganyika (Compensation and Retiring Benefits) Order in Council, 1961, or Retirement (Special Provisions) Act, 1962, or sub-section (2) of section 17 of the Republic of Tanganyika (Consequential, Transitional and Temporary Provisions) Act, 1962; or

(b) The termination, otherwise then by dismissal, of the service of any public officer, other E than the substantive holder of a pensionable office, in accordance with the terms of his employment, or the dismissal of any person from any office on the personal or domestic staff of the President or of any person holding an office the emoluments of which are payable at an hourly or daily rate. F

(5) Nothing in sub-section (1) or (2) shall apply to the dismissal of a civil servant who is an employee to whom the provisions of Part III of the Security of Employment Act, 1964, shall apply.

(6) Nothing in subsection (1), (2) or (3) shall apply in relation to any person holding the office of Controller and Auditor -- General.' G

I must now proceed to quote Regulation 29 of the Civil Service Regulations, 1970 (the Regulations). The Regulation reads:

`29-(1) Where the Principal Secretary is of opinion that a reason exists why an officer serving H on pensionable terms and who has attained the normal age of voluntary retirement, should be called upon to retire otherwise than on disciplinary or on medical grounds, the

Principal Secretary may request the officer concerned to show cause why he should not be compulsorily retired. The Principal Secretary shall forward any representations made by the officer, pursuant to the notice given to him, together with his own recom- I
1997 TLR p8
SAMATTA JK
A mendations to the appointing authority, who shall decide whether or not such officer should be called upon to retire.

(2) Where a Principal Secretary is of the opinion that the President should be invited in the exercise of the powers conferred upon him by subsection (3) of section 20 of the Act [the Civil Service Act, 1962], to consider the removal of an officer in the public interest, the Principal B Secretary shall furnish to the President through the Principal Secretary (Establishments) such particulars as the President may, from time to time, by general or specific direction, require.'

C Standing Orders F 35, 44 and 49 for the Public Service, 1971, read as follows:

Standing Order F 35

`F 35 All appointments at the pleasure of the President. -- Excepting Judges of the High Court and the Controller and Auditor-General whose tenure of office is governed by the terms of the Interim Constitution of Tanzania, all other officers hold their respective offices subject to the D pleasure of the President of the United Republic. The pleasure of the President that any one of these officers should no longer hold it, may be signified through the Principal Secretary (Establishments) in which case no special formalities are required.' E

Standing Order F 44

`F 44 Removal in the public interest. -- The president may remove a civil servant or police officer from the public service if he considers it is in the public interest to do so otherwise than for the purpose of localization of the public service. The decision of the President that an officer F be removed from the service in the public interest may be signified through the Principal Secretary (Establishments) in which case no special formalities are required. The question of pension will be dealt with in accordance with the relevant provisions of the Pensions Ordinance (Cap 371).'

G Standing Order F 49

`F 49 Grounds for retirement on pension and/or gratuity under the Pensions Legislation. -- The Pensions Act (sic), (Cap 371) and the Regulations made thereunder, set out the circumstances under which a pensionable officer may elect to retire or may be called upon to retire others than on disciplinary grounds. These grounds are summarised below: H

(a) on or after attaining the age of 45 years:

Provided that an officer of the rank of Constable in the Police Force or an officer of the rank of Prison Officer Grade III in the Prisons Service may elect to be called upon to retire after he has attained the age of 40 years; I
1997 TLR p9
SAMATTA JK

(b) on the abolition of his office; A

(c) for purpose of facilitating improvement in the organisation of the Department to which he belongs by which greater efficiency or economy may be effective;

(d) on medical grounds;

(e) female officers may elect to retire on marriage, and will be granted such gratuity or pension, if any, for which they may be eligible.' B

Those are the provisions upon which the President, according to the letter addressed to the applicant by the Principal Secretary (Establishments), quoted C above, based his impugned decision. I will now proceed to deal with the contentions addressed to me by counsel. I hope I can summarise those contentions very briefly without doing any injustice to them. In his engaging argument Mr Nassoro contended that the President's decision is invalid for the following reasons: (a) the basis for the decision is vague because the provisions of D law relied upon therein deal with matters of employment which are incompatible; (2) the Standing Orders referred to in the Principal Secretary's letter have no force of law as there were declared by this Court (Mwalusanya J) in James F Gwangilo v Attorney-General, (1) to have been superseded by the Constitution and the Civil E Service Act, 1989; and (3) the failure by the President to give reasons for his decision is fatal to the said decision: the President was found in law to disclose to the applicant the factor or factors which, in his opinion, constituted the alleged public interest. Mr Songoro urged me to hold that the President's decision is F proper and in accordance with the law of the land. He forcefully contended that the paramount words in the Principal Secretary's letter, as far as the reason for the President's decision is concerned, are the words `amekustaafisha kwa Manufaa ya Umma'. According to the learned Senior State Attorney, the Applicant had no G right in law to be given more information than that. Counsel urged me to hold that the President acted within his powers, and the procedure he applied was correct and sufficient. It seems to me that it is desirable, if not necessary, that some of the general principles which I consider to be relevant to the determination of the application now before me should be distinctly set out. In my opinion, the following are those principles: H

(1) The common law principle that a civil servant is dismissible at pleasure (see Shenton v Smith (2) and Gould v Stuart (3)) is not part of the law of this country: see s 36(2) of the Constitution as I

A read together with s 26(1) of the said Constitution, and James F Gwangilo's case supra. In this country, civil servants are dismissed for misconduct only: see s 19(2) of the Civil Service Act, 1989. When a civil servant is dismissed cause must be assigned. The English common law doctrine of `service at pleasure' has, as, I hope, amply B demonstrated above, no place in the law of this country. The saying `Whatever pleases the emperor has the force of law' forms no part of our law.

(2) While in England the courts are not concerned with the Civil service as such, because the civil servant there is in law only a servant of the C Crown, dismissible at the pleasure of the Queen without notice or compensation, in Tanzania the civil servant has some

legal rights, including the right to be afforded an opportunity to show cause why he should not be dismissed from the service, which are enforceable in the courts.

D (3) No power conferred by law on a public leader or officer is absolute or limitless. Every such power must be exercised in good faith and in accordance with the Constitution and other laws. Any assertion that presidential powers brook no limitation would have no basis in law.

E (4) Compulsory retirement of a civil servant or his removal from service in the public interest may be challenged in this Court on, among others, any of the following grounds:

(a) the legislation under which the impugned decisions was made is unconstitutional;

F (b) the decision is mala fide ie, it is actuated by malice or some purpose other than that for which it is authorised by the law: malice would be held to exist where, for example, the alleged public interest, where removal is concerned, is founded upon non-existent facts;

G (c) the decision is perverse, that is to say, one which no responsible man would have made.

(5) The Standing Orders for the Public Service have no legislative effect; they are meant for departmental and administrative purposes: see IG Lazaro v Josephine Mgombera (4). Those Orders form the internal law of the Civil Service. H

Having stated these principles, I proceed to ask myself whether the impugned decision of the President is not valid in law. My mind is free from doubt as to how that question ought to be answered. I agree with Mr Nassoro that the President's decision is unsupportable in law. I hold that view for the following reasons: I

1997 TLR p11

SAMATTA JK

(1) The letter from the Principal Secretary cites provisions of law which are A incompatible, that is to say, provisions which do not go together. Whereas the removal of a civil servant from service under s 8(f) of the Ordinance, s 19(3) of the Civil Service Act, 1989, reg 29(2) of the Regulations and Standing Order F44 is based on the general requirement of public interest, the removal under Standing Order F 49(c) must specifically be based on the need of, to quote the Order, B `facilitating improvement in the organisation of the Department to which [the civil servant] belongs by which greater efficiency or economy may be effective'. By being based on the two sets of provisions the President's decision has, I agree with Mr Nassoro, caused the applicant considerable embarrassment. C

(2) The citation, in the Principal Secretary's letter, of Standing Order F 35 as being one of the legs on which the President's decision was intended D to stand suggests, very strongly, that in making, or coming to, his decision the President was under the mistaken belief that the applicant held his office in the Immigration Department at his (the President's) pleasure. I have, I hope, sufficiently demonstrated that in this country civil servants, including immigration officers, do not hold office at the pleasure of the President. It is perfectly correct to say that a civil E servant's security of tenure is lesser than that of a judge, but it is equally

correct to observe that that security is not as limited as is implied by the Principal Secretary's letter. Standing Order F 35 cannot be valid in law, because it is inconsistent with the provisions of ss 22 and 36(2) of the Constitution as read together with s 11(1) of the said Constitution. F

(3) No provision of law speaks of retirement of a civil servant in the public interest. Neither s 19 of the Civil Service Act, 1989 nor reg 29 of the Civil Service Regulations, 1970, confers on the President power to retire a G civil servant in the public interest. The provisions speak of removal, and not retirement, in the public interest. It is not of little interest to point out that even Standing Order F 44 does not speak of retirement. It speaks of removal. Paragraph (d) of s 8 of the Ordinance refers to compulsory H retirement for the purpose of facilitating improvement in the organisation of the department to which the servant belongs, by which greater efficiency may be effected. Neither what is stated in the Respondent's counter-affidavit nor what fell from the lips of Mr Songoro at the Bar during the hearing of the application gives even a faint suggestion that the pur- I

A ported termination of the applicant's employment falls under one of the categories of compulsory retirement mentioned in s 10 of the Ordinance, as amended by s 7 of the Pensions Law (Miscellaneous Amendments) Act, 1978. When all this is taken into account, it must be correct to say, as I do, that the use of the word `amekustaafisha' in the Principal Secretary's letter to the applicant causes even more confusion B as to exactly why the President acted in the manner he did with regard to the applicant's employment.

C Since I am of the settled opinion that the above three grounds constitute a sufficient warrant for faulting the President's decision, I do not find it necessary to consider Mr Nassoro's argument that, when ordering the removal of a civil servant from public service in the public interest, the President is bound in law to give reasons disclosing factors which, in his opinion, constituted public interest in the D particular case. In James F Gwagilo's case supra, Mwalusanya J was of the clear opinion that such reasons made be given. Thought the point is not an uninteresting one, I do not for the reason I have given, think it right to lengthen this ruling by discussing it.

E Before I part with this application, I would like to say a word or two on the true application of the provisions of s 23 of the Civil Service Act, 1989. The section reads:

F `23 -- (1) No proceedings shall be brought in any court on ground only that the provisions of this Act, other that the provisions of sub-section (2) of section 3 and Part V, have not been complied with; but nothing in this section shall apply to any criminal proceedings for an offence against any of the provisions of this Act.

(2) The question whether --

G (a) The President validly performed any function conferred on him by section 36 of the Constitution or by this Act;

(b) the Commission or other delegate has validly performed any functions the exercise of which has been delegated or deputed to it or him, shall not be enquired into by or in any court, subject to the provisions of sub-section (3).

H (3) Where a person is dismissed, the provisions of sub-section (2) shall not apply in relation to that dismissal unless prior to the dismissal, the provisions of section 19(2) are complied with.'

I was inclined to think that I was not deterred by these provisions from entertaining the instant application. In my opinion, those provisions do not take away the supervisory jurisdiction of this I

1997 TLR p13

SAMATTA JK

Court where it is alleged, as is the case in the present application, that a decision A made by the President under s 36 of the Constitution and the provisions of the Civil Service Act, 1989, is invalid in law. As I understand the law, if a decision purportedly made by an authority which falls under the supervisory jurisdiction of this Court is challenged on the ground that it is not valid in law or it is null and void it becomes the bounden duty of the Court to hear the aggrieved party. It must be B distinctly understood, however, that this Court's supervisory jurisdiction is one of supervision and not of appeal or revision. When it exercises that jurisdiction this Court does not sit as a super-executive. Thus, when it issues an order of certiorari C the Court does not substitute another order in the place of the quashed order, but it removes that order out of the way, as one which should not be used to the detriment of any individual: see Walsall Overseers v Railway Company (5) at 39. Where an authority exceeds its jurisdiction, its decision will be regarded by the courts as invalid in law and beyond the protection of any exclusionary formula: see Anisminic v Foreign Compensation Commission (6). Parties to disputes as to legal rights must have access to legal tribunals for the settlement of those D disputes.

For the reasons I have given, I hope not at an inordinate length, I allow the application and quash the President's decision purporting to retire the applicant in the public interest. The respondent is to pay the applicant's costs in the E application.

1997 TLR p14

G F KASSAM v AMIRALI WALJI AND ANOTHER 1997 TLR 14 (CA) A

Court High Court of Tanzania - Dar es Salaam
Judge Ramadhani JJA, Mnzavas JJA and Lubuva JJA

CIVIL APPEAL 45 OF 1995

B 14 November 1996

(Appeal from the judgment and decree of the High Court of Tanzania, Dar es Salaam, Mwaikusa J.) C

Flynote

Land - Licence - Licence coupled with interest - Former owner of nationalised building which has been returned to him or her for duration of lifetime.
Landlord - Who is a landlord - Former owner of nationalised building which had been returned for duration of owner's lifetime.
-Headnote
The appellant was the tenant in a home which had been nationalised in 1971. The respondents had applied for the denationalisation of the house and had been D permitted by the President to collect and use the rents paid by the tenant (the appellant) for the duration of her life and that of the first respondent. The house was to remain in the name of the N H Corporation. After this permission was granted the respondents sought the eviction of the appellant from the premises. The High Court held that the respondents were clothed with the status of the landlord and as such they could evict a tenant. On appeal, E
Held:
(1) That in terms of the decision in The Registrar of Buildings v Felix Bwogi t/a Eximpo Promotion and Services (1) only a landlord could sue to evict a tenant and that one tenant could not seek to evict another tenant;
F (2) The respondents were licencees where the licence was coupled with an interest and were de facto landlords;
(3) The respondents could accordingly either take the rents themselves and use them or they could reside in the premises themselves and they could therefore seek the eviction of the appellant.
Case Information
G Appeal dismissed.
Cases referred to:
1. The Registrar of Buildings v Felix Bwogi t/a Eximpo Promotion and Services Civil Appeal No 19 of 1988 (unreported)
H 2. The Registrar of Buildings v Dr Ali H Kombe [1982] TLR 61
Majithia for the appellant.
Chandoo for the respondents. I
1997 TLR p15
Judgment
Ramadhani JA: A
The house on Plot No 1307/148 on Kitumbini Street, Dar es Salaam, originally belonged to one Mrs Ramatbai Alibhai, deceased, who was the mother of the second respondent, Rukiya Amirali Walji, and the mother-in-law of the first respondent, Amirali HM Walji. The appellant, Gulamabhas F Kassam, was the B tenant. That house was nationalised in 1971 under the Acquisition of Buildings Act, 1971 and was put under the Registrar of Buildings. The appellant continued to be the tenant.
The second respondent, that is the daughter of the original owner of the house, C petitioned the President of the United Republic of Tanzania for the denationalisation of the house and its eventual return to her as the heiress. By a letter SHC/A70/2 of 26 May 1992 signed by the

Principal Secretary to the President (hereinafter referred to as the letter from Ikulu) the second respondent was allowed to collect and use the rents paid by the tenant in that house for the D duration of her life and that of the first respondent. It was categorically said in that letter that the house will continue to be in the name of the National Housing Corporation (NHC). Incidentally, to digress a bit, in 1990 the office of the Registrar of Buildings was merged with NHC and its property and activities passed on to the latter. E

The respondents filed a suit before the Regional Housing Tribunal of Dar es Salaam seeking to evict the appellant from the said house. Mr Majithia, learned counsel, who advocated for the appellant, raised a preliminary objection that the F respondents were not the landlords but were mere tenants and as such they could not effect eviction of a fellow tenant. He cited our decision in The Registrar of Buildings v Felix Bwogi t/a Eximpo Promotion and Services (1).

The Tribunal agreed with the submissions of Mr Chandoo, learned advocate for G the respondents, that the respondents were, by implication, the life landlords of the suit premises. The reasons were that the respondents were entrusted, in their life time, with the responsibilities of collecting rents, repairing the house and paying land rates. H

The appellant was aggrieved by that decision and he successfully appealed to the Housing Appeals Tribunal. It was held that NHC was the landlord and that the concept of a junior landlord is unknown in the land law of Tanzania. The respondents were found to be tenants and therefore they could not evict another tenant unless I

A they did so as agents of the landlord and that in that case the plaint had, under Order 3 Rule 1 and 2 to say so explicitly.

So, the preliminary objection was upheld and the suit was dismissed.

B The present respondents appealed to the High Court of Tanzania where Mwaikasu, J held that the respondents were clothed with the status of the landlord and as such they could evict a tenant. Thus the learned judge restored the ruling of the Regional Housing Tribunal. Mwaikasu, J reviewed the land law of England and saw that the right to receive rents as an owner, and not as a mere collector, is one of the incidents of being a landlord. C

This is now an appeal from that decision of Mwaikasu, J. The main issue, as Mr Majithia, learned counsel for the appellant said is whether or not the respondents can evict the appellant.

D Mr Majithia pointed out that this Court has decided in The Registrar of Buildings v Dr Ali H Kombe (2) that a former owner of a nationalised building is a licensee and not a landlord when that building is returned to him or her for the duration of his or her lifetime. So, the learned advocate submitted, the respondents, here are also licensees and that, as under Bwogi's case supra, they cannot evict a tenant. E

Mr Chandoo, for the respondents, first argued that if the respondents, by the authority of Dr Kombe, are licensees and not tenants, then Bwogi is inapplicable because it is about tenants. The learned advocate argued further that as F respondents were given a right of occupancy for life, they were then trustees of the reversionary interest of NHC. He submitted that seeking eviction was in the exercise of the protection of that reversionary right. Thirdly, the learned advocate

submitted that to be a landlord one does not have to be an owner of a premises. He pointed out that all the land in Tanzania belongs to the President who grants rights of occupancy. Mr Chandoo argued that the holders of the rights of G occupancy are regarded as landlords and do evict their tenants. Finally, the learned advocate submitted that if the premises fall vacant the respondents would either enter into occupation themselves or they would look for another tenant. He argued that the respondents are, therefore, landlords. H

Mr Majithia in reply said that a licensee cannot be a landlord. He pointed out that under Bwogi only the landlord can evict. The learned advocate said that if the premises become vacant then the respondents will have to consult NHC and cannot just enter into occupation themselves or get another tenant. I

1997 TLR p17

RAMADHANI JA

There is not a slightest doubt in our minds that Bwogi is categoric that only a A landlord can sue to evict a tenant and that one tenant cannot seek to evict another tenant. Similarly, according to Dr Kombe the respondents are not tenants but are licensees. In the Dr Kombe case a former owner of a house nationalized under the Acquisition of Buildings Act, 1971 had her house returned to her for the duration of B her life. She sold it to Dr Kombe. This Court held that the lady was a licensee and as such she had no title to pass on to a buyer. This Court had this to say at 65: C

> `In our view what the Government really intended to do, and what it in fact did, was to create a lesser or limited interest in favour of Mrs Kaur while it (the Government) itself retained the legal title to the property. The interest so created was to all intent and purposes a licence to enjoy the fruits of the suit premises; it amounted to no more than that.' D

Now, we have to determine what was not decided in Dr Kombe and that is whether a licensee can evict a tenant in order to `enjoy the fruits of the suit premises'. In other words, can a licensee be deemed to be a landlord for the purposes of eviction? E

Landlord is defined in s 3 of the Rent Restriction Act, 1984 as follows:

> `includes, in relation to any premises, any person, other than the tenant, who is or would be, but for the provisions of this Act entitled to possession of the premises and any person from time to time deriving title under the original landlord, and any person deemed to be a landlord under s 4 or s 5'; F

We may as well say it here that ss 4 and 5 are inapplicable in this case. Two G things are obvious to us; one, a tenant, which title does not apply to the respondents, can never be a landlord and two, for the suit premises the title landlord is not confined to NHC only. The question is whether the respondents are `entitled to possession of the premises' and hence are landlords.

It is quite in order to revisit briefly the law regarding licence first, and then to look at H the terms of the licence of the respondents. A licence is a permission given by an occupier of land which allows a licensee to do some act which would otherwise be trespass. Since licences are almost purely personal transactions, it is difficult to put limits to their possible varieties. However, there are generally three different classes distinguishable. I

A First, there is a bare licence which is granted otherwise than for valuable consideration eg gratuitous permission to enter a house or field. This can be revoked at any time on reasonable notice. Then there is a licence coupled with an interest, that is, proprietary interest in other property. For example, a licensee is B allowed to enter a premises and to hunt or cut trees and then to take the animal killed or the wood cut. Under common law such a licence is irrevocable and is assignable. However, the interest must be validly created. Lastly, there is a contractual licence. This is where, for instance, one has a ticket for a sports match or for travelling. The licensor contracts not to revoke the licence. C

The respondents fall in the second category, that is, licence coupled with an interest. They have been allowed to take rents for their lifetime. As already seen such licence under common law is irrevocable. However, we are quick to add that where the terms of the licence are abused, as was the case in Dr Kombe, then the licence can be revoked. Here the interest was validly created because, as D properly pointed out in Dr Kombe at 64, the Registrar of Buildings, now NHC, under s 4(2) of the Acquisition of Buildings Act, 1971, acquired property subject to the directions of the President. The letter from Ikulu constitutes such directions of E the President. So, the respondents have the assurance of enjoying the fruits of the suit premises for their lifetime so long as they abide by the terms of the licence. Now, what are these terms?

The letter from Ikulu says, in the relevant parts, as follows:

F `... Rais amengiza kuwa badala ya kurudishiwa kabisa nyumba hiyo, Ndugu Rukia Amarshi Walji achukue kodi ya upangaji wa nyumba hiyo kwa kipindi cha uhai wake na wa mumewe.

Kwa kuwa utekelezaji wa uamuzi huu ni sawa na kurudishwa kwa nyumba hii kwa kipindi cha maisha yake yote na ya mumewe, masharti yafuatayo yazingatiwe . . .' G

That can be translated as:

H The President has directed that instead of restoring that house completely, Mrs Rukia Amarshi Walji to collect rents from the house for the duration of her life and that of her husband. As the implementation of this decision is tantamount to the restoration of the house for the duration of her life and that of her husband, the following conditions have to be observed ...'

It is clear that the house was returned to the respondents for their lifetime and because of that some conditions had to be observed. So, I

the conditions were imposed because `life ownership' of the house was granted. S The conditions did not create the life ownership. However, only one of the conditions underscored the fact that the arrangement was for their lifetime. That was the requirement that the house continues to be in the name of NHC. The other two conditions are typical incidents of being a landlord; to repair the house and to pay land rates. B

Admittedly, another condition was that rents could only be altered after consultation with NHC. We think there was a good reason for that condition. Under the Rent Restriction Act, 1984, the Regional Rent Tribunals fixed the standard C rents for every building. All landlords, including NHC, were required to observe the standard rents. Any change of rents required the approval of the Regional Rent Tribunal. However, the situation was changed by the Rent Restriction (Exemption) (Specified Parastatals) Order, 1992 GN 41 of 1992 of 20 March 1992. Seven D specified parastatals, including NHC, were exempted from all the provisions of the Rent Restriction Act, 1984, relating to the restriction on the amount of rent that may be charged or collected by the specified parastatals as the landlord. So, rents charged on the suit premises were not controlled by the Rent Restriction Act, 1984. Since the suit premises remained in the name of NHC, the respondents E could cash in on that exemption and charge rents above the standard rents. We think that it was absolutely necessary to require the respondents to consult NHC, the real beneficiary of the exemption, before altering the rents. For the sake of record, we have to point out here that GN 41 of 1992 was published on 20 March 1992 and that it was already in force when the letter from Ikulu was signed on 26 May 1992. F

So, we are satisfied that the respondents were de facto landlords. The condition that they should consult NHC before altering rents was only necessary to ensure that they do not abuse a statutory privilege which is not theirs. It was that condition G which made Mr Majithia take the view that the respondents could not occupy the premises themselves or look for a new tenant if the premises become vacant. But because of the rationale we have stated for that condition, we see nothing which can stop the respondents from being entitled to possession of the premises. In fact the respondents could either take the rents and use them or they could reside H in the premises themselves. So, we find that the respondents are entitled to possession but for the Act which restricts possession except in certain circumstances and as such we are of the opinion that the respondents, as licensees, are landlords under s 3 of the Rent I

1997 TLR p20

RAMADHANI JA

A Restriction Act, 1984 and that they could seek the eviction of the appellant.

The appeal is dismissed with costs. B

1997 TLR p20

MUHAKA ENTERPRISES v NATIONAL HOUSING CORPORATION AND ANOTHER 1997 TLR 20 (HC) C

Court High Court of Tanzania - Dar es Salaam
Judge Kaji J

D CIVIL APPEAL 19 OF 1996

13 November 1996

Flynote

Landlord and tenant - Allocation of premises under s 12(1)(k)(i) of Rent Restriction Act 1984 - Regional Housing Tribunal has no powers to allocate a home belonging to specified parastatal to a tenant by virtue of GN 41 of 1992. E

-Headnote

F The appellant company applied before the Regional Housing Tribunal for certain apartments to be allocated to it on the ground that the said apartments had remained unoccupied for a period exceeding one month without good cause. The application was filed under s 12(1)(k)(i) of the Rent Restriction Act 17 of 1984. The apartments belonged to the National Housing Corporation, a parastatal, as landlord. The Regional Housing Tribunal rejected the contention of the second G respondent (who had applied to be joined as an interested party, alleging to be the legal tenant) and ordered the second respondent to vacate the premises immediately. The appellant was declared a tenant and the first respondent was ordered to conclude a proper lease with the appellant as tenant. The respondents appealed to the Housing Appeals Tribunal, contending that the Regional Housing H Tribunal had no jurisdiction to deal with the matter in view of GN 41 of 1992. The Housing Appeals Tribunal rejected the appeal and set aside all the orders made by the Regional Housing Tribunal on the ground that the Regional Housing Tribunal had no jurisdiction by virtue of GN 41 of 1992..

Held:

(1) When a tenant is allocated a home by a Regional Housing Tribunal under s 12(1)(k)(i) of the Rent Restriction Act 1984, that allocation I

1997 TLR p21

KAJI J

operated to confer on that tenant a statutory tenancy upon the A determination of his contractual tenancy;

(2) The essence of GN 41 of 1992 was to exempt specified parastatals from the Tribunal's interference in fixing rents and in allocating their houses to tenants of their own choice and extended even to cover eviction of tenants already in occupation who would otherwise be protected; B

(3) A Regional Housing Tribunal had no powers to allocate a house belonging to a specified parastatal to a tenant under s 12(1)(k)(i) of the Rent Restriction Act by virtue of GN 41 of 1992. The Housing Appeals Tribunal was accordingly correct in holding so.

Case Information

Appeal dismissed. C

Case referred to:

1. Carter v SU Carburetter Co [1942] 2 KB 288

Mwakajinga for the appellant.

Rwabutaza for the respondents. D

[zJDz]Judgment

Kaji J:

The appellant company trading as Muhaka Enterprises was the applicant before the Regional Housing Tribunal at Dar es Salaam applying for, inter alia, being allocated apartments No 0001 and 0002 on Plot No 2222 Block 129 Nkurumah E Street on the ground that the said apartments had remained unoccupied for a period exceeding one month without good cause. That application was filed under s 12(1)(k)(i) of the Rent Restriction Act No 17 of 1984.

The said apartments belong to the first respondent the National Housing Corporation as landlord. F

The second respondent Dar es Salaam Regional Trading Co Ltd (RTC) applied to be joined as interested parties alleging to be legal tenants in the said apartments. G

The Regional Housing Tribunal rejected the second respondent's application and declared the second respondent to be an unlawful tenant. It ordered the second respondent to vacate the suit premises immediately.

At the same time the appellant was declared a tenant and the first respondent was ordered to conclude a proper lease with the appellant as tenant to the suit premises. H

The respondents were aggrieved. They jointly appealed before the Housing Appeals Tribunal. One of their main grounds of appeal was that the Regional Housing Tribunal had no jurisdiction to deal with the matter in view of Government Notice No 41 of 1992.

The Housing Appeals Tribunal summarily rejected the appeal I

1997 TLR p22

KAJI J

A and set aside all the orders made by the Regional Housing Tribunal on the ground that the Regional Housing Tribunal had no jurisdiction to entertain that matter by virtue of Government Notice No 41 of 1992.

The appellant was aggrieved. Hence this appeal.

B The appellant's learned Counsel Mr Mwakajinga raised two grounds of appeal, namely,

1. That the learned Deputy Chairman erred in law in setting aside the orders of Dar es Salaam Regional Housing Tribunal on authority that Government Notice No 41 of 1992 exempted the National Housing C Corporation from being sued for invoking its powers under s 12(1)(k)(i) of the Rent Restriction Act 1984.

2. That the learned Deputy Chairman erred in law in setting aside the orders of the Regional Housing Tribunal while at the same time he summarily rejected the appeal. D

Elaborating on these Mr Mwakajinga stated that the National Housing Corporation is not exempted by Government Notice No 41 of 1992 when s 12(1)(k)(i) is to be E applied. He said Government Notice No 41 of 1992 para 4 is restricted to statutory tenancy only. He said when the issue is not statutory tenancy then National Housing Corporation is not exempted.

F The learned Counsel went on, submitting that Government Notice No 41 of 1992 does not define statutory tenancy and also the Rent Restriction Act 1984 is silent on this except s 32 which gives conditions of statutory tenancy. He said a statutory tenant is a tenant who retains possession of any premises after his contractual tenancy has expired. He cited also the case of Carter v SU Carburetter Company (1) which also defined `statutory tenancy' to that effect. G

Mr Mwakajinga said since the appellant's claim was not based on statutory tenancy but on tenancy under s 12(1)(k)(i), the National Housing Corporation cannot hide itself behind Government Notice No 41 of 1992 for defence and that the honourable Deputy Chairman was wrong in holding that the Regional Housing Tribunal had no jurisdiction to entertain the application. H

The learned Counsel went on, submitting that the honourable Deputy Chairman summarily rejected the appeal. Since that was the case then there was no reason of setting aside the orders of the Regional Housing Tribunal because by rejecting the appeal the decision of the Regional Housing Tribunal remained intact. I

1997 TLR p23

KAJI J

All in all the learned counsel said he did not understand the logic of rejecting an A appeal and at the same time setting aside the orders appealed against.

He therefore called upon this court to allow the appeal with costs.

Mr Rwabutaza learned counsel who represented the respondents at the hearing of this appeal replied that Government Notice No 41 of 1992 has exempted the B National Housing Corporation from the provisions listed thereunder which include the whole of s 12. He said a Regional Housing Tribunal has no jurisdiction to entertain any matter falling under s 12. He therefore rejected Mr Mwakajinga's contention that the exemption is limited to statutory tenancy. C

Mr Rwabutaza went on, replying that since the Regional Housing Tribunal had no jurisdiction and since the Housing Appeals Tribunal also held so, it was probably a slip of the pen by the honourable Deputy Chairman to say he summarily rejected the appeal. This is more so when he set aside all the orders which were subsequently made by the trial tribunal under the wrong self imposed jurisdiction. D He therefore called upon this court to dismiss the appeal with costs. In short that is what the learned counsels submitted.

The crucial issue is whether the Regional Housing Tribunal had jurisdiction to entertain the appellant's application under s 12(1)(k)(i) of the Rent Restriction Act, 1994 in view of para 4 of Government Notice No 41 of 1992. E

The said paragraph says:

> `4 All premises in respect of which a specified parastatal is the lawful landlord are hereby F exempted from the provisions of ss 12, 16, 17, 25, 26 and 37 of the Rent Restriction Act, 1984, which operate to confer upon a tenant a statutory tenancy upon the determination of his contractural tenancy'

The Housing Corporation is among the specified parastatals. Therefore the crucial G issue at this stage is whether the provision of s 12(1)(k)(i) of the Rent Restriction Act 1984 operates to confer upon a tenant a statutory tenancy upon the determination of his contractual tenancy. The said provision says: H

> `12(1)(k)(i): The Tribunal shall in relation to every rent restriction area within its jurisdiction, have powLer to do all things which it is required or empowered to do by or under the provisions of this Act, and without prejudice to the generality of the foregoing shall have

power to allocate to any suitable tenant, at such rent as the Regional Tribunal may fix, any house of portion thereof which without good I
1997 TLR p24
KAJI J
A cause has been left unoccupied for a period exceeding one month and, if any house is in an unfinished condition to cause such house to be finished in all respect and rendered fit for habitation.'
Therefore when a Tribunal allocates a house to a tenant under this provision of the law it must do two things. Firstly it must allocate that house to the tenant. Secondly it must fix a rent for that house. B
But for a house belonging to a specified authority such as the first respondent NHC, a Regional Housing Tribunal has no jurisdiction to fix a rent by virtue of para 3 of Government Notice 41 of 1992 which says: C
`3 All premises in respect of which a specified parastatal is the lawful landlord are hereby exempted from all the provisions of the Rent Restriction Act 1984, relating to restriction on the amount of rent that may be charged or collected by the specified parastatal as the landlord from any part of those premises.' D
Thus this provision gives full power to the specified parastatals to fix rents of their own choice for their houses without being interfered with by the Regional Housing E Tribunal is that respect. A Regional Housing Tribunal cannot interfere with them on this nor can it come into their shoes and fix rents for their houses. Secondly when a Regional Housing tribunal allocates a house to a tenant under this F provision, that tenant becomes a legal tenant and his tenancy will continue in force according to the tenancy agreement to be agreed between him and the landlord. He will be there on a contractual tenancy. At the determination of that contractual tenancy if he continues in occupation paying the rent but without any new tenancy agreement he becomes a statutory tennant as per the case of Carter v SU Carburetter Company cited supra. G
Therefore it would appear that when a tenant is allocated a house by a Regional Housing Tribunal under s 12(1)(k)(i) of the Rent Restriction Act 1984 that allocation operates to confer on that tenant a statutory tenancy upon the H determination of his contractual tenancy.
The essence of Government Notice 41 of 1992 is to exempt the specified parastatals from the Tribunal's interference in fixing rents and in allocating their houses to tenants of their own choice. The exemption does not end up with rent and allocation only. It extends I
1997 TLR p25
KAJI J
to cover even eviction of tenants who are already in occupation who would A otherwise be protected in a Tribunal by s 25, or subletting under s 37.
However I must admit that para 4 Government Notice 41 of 1992 has been couched in a complicated phraselogy which says: B

`... are hereby exempted from the provisions of ss 12, 16, 17, 25, 26 and 37 of the Rent Restriction Act 1984, which operate to confer upon a tenant statutory tenancy upon the determination of his contractual tenancy.'

This could easily be interpreted to mean that those specified parastatals are C exempted from the provisions of those sections in respect of statutory tenants only, or that they are exempted from those provisions where statutory tenancy is concerned, or that they are exempted from the provisions of those sections which grant statutory tenancy to a tenant. But I think the word `operate' has a future D meaning to mean that those specified parastatals are exempted from the provisions of those sections which place the tenant in a position to be able to acquire the status of a statutory tenant at the determination of his contractual tenancy. Allocating a tenant with tenancy under s 12(1)(k)(i) places a tenant in a E position to acquire the status of a statutory tenant at the determination of his contractual tenancy.

It is for the above reasons that I have been of the view that a Regional Housing Tribunal has no powers to allocate a house belonging to a specified parastatal to a tenant under s 12(1)(k)(i) of the Rent Restriction Act 1984 by virtue of Government F Notice 41 of 1992. The honourable Deputy Chairman of the Housing Appeals Tribunal was right in holding so.

Since the Regional Housing Tribunal had no powers to do what it purported to do, G the Housing Appeals Tribunal was right in setting aside all the orders purportedly made by the Regional Housing Tribunal. I agree with the respondent's learned counsel Mr Rwabutaza that the words `summary rejection' was probably a slip of the pen by the honourable Deputy Chairman. The contents of the order had the H meaning of allowing the appeal on the ground of lack of jurisdiction by the Regional Housing Tribunal. It is hereby rectified accordingly.

Appeal dismissed with costs. I

1997 TLR p26

LUDOVICK K MBONA v NATIONAL BANK OF COMMERCE 1997 TLR 26 (CA) A

Court Court of Appeal of Tanzania - Mwanza
Judge Lubuva JA

B CIVIL APPLICATION NO 1 OF 1996

6 December 1996

Flynote

Civil Practice and Procedure - Appeals - Rule 52(1) - Mandatory to serve respondent as a necessary party - Failure to comply with Rule. C

Civil Practice and Procedure - Appeals - Rules 43 and 44 - Rules envisaging valid and competent applications only.

-Headnote

D The applicant sought leave to appeal against an order of the High Court which had struck out the applicants' application.for leave to appeal against an order disallowing an award of damages. The respondent objected that the application was incompetent, firstly, as it did not comply with the requirements of Rule 52 of the Court's Rules and secondly that application for leave had first to be made to the High Court.

Held: E

(1) Under Rule 52 (1) it is mandatory to serve the respondent as a necessary party with the notice of motion two clear days before the hearing: this had not been done and the application was therefore incompetent; F

(2) That Rules 43 and 44 of the Court Rules envisaged valid and competent applications only: applications which were invalid or incompetent, as was the case in the instant matter, were not proper.

Case Information

Application dismissed.

Cases referred to: G

1. Harram Singh Bhogal t/a Harram Singh & Co v Jadva Karsan [1953] 20 EACA 17
2. Leonsi Silawyo Ngalai v Justine Alfred Salakana and The Attorney General Civil Appeal No 38 of 1996 (unreported) H

Kwikima, for the applicant.

Mtaki, for the respondent.

[zJDz]Judgment

Lubuva JA:

This is an application, by notice of motion in which the applicant, Ludovick Mbona, is seeking leave to appeal to this Court against I

1997 TLR p27

LUBUVA JA

the order of the High Court (Mackanja, J) of 1 September 1996. A

In this application the applicant was represented by Mr Kwikima, learned counsel. For the national Bank of Commerce, the respondent, Mr Mtaki, learned counsel appeared. Both the learned counsel had also appeared before the High Court at Tabora.

The matter arises from Urambo District Court Civil Case No 9 of 1994 in which the B applicant was awarded Shs 10,000,000/= damages against the respondent. On appeal to the High Court (Tabora D/C Civil Appeal No 16 of 1995) the award was disallowed on 28 August 1995. From that decision, the applicant sought leave from the High Court to appeal to this Court. In Misc Civil Application No 12 of 1995 the C applicant's application for leave was on 1 September 1996 struck out on the ground that it was incompetent. Hence the applicant has come to this Court seeking leave to appeal. The application is supported by an affidavit which was deposed to by Mr Kwikima. In sum total in that affidavit the complaint is against the D High Court decision on the appeal and there is hardly any mention of the ruling pertaining to the application for leave to appeal which was struck out.

Before me, when the application was called on for hearing, Mr Mtaki, learned E counsel, took a preliminary objection that the application was incompetent because it did not comply with the requirement of Rule 52 of the Court's rules. Mr Mtaki further submitted that though in terms of Rule 44 of the Court's rules the High Court has concurrent jurisdiction with this Court, it is a mandatory requirement under this rule that application for leave must first be made to the High F Court. In the instant matter, Mr Mtaki maintained, as the applicant's application was struck out on 28 August 1995 on account of its incompetence, there was thereafter no valid application before the High Court. As a result, Mr Mtaki contended, there is no legal basis upon which this application is brought to the Court of Appeal. It should be dismissed. G

Mr Kwikima, learned counsel for the applicant forcefully responded to these submissions. In essence Mr Kwikima conceded that the respondent had not been served with the notice of motion. However, he was quick to qualify that when the H notice of motion was filed, service on the respondent was effected through the offices of Mr Mtaki, learned counsel for the respondent. But such service was not accepted, Mr Kwikima added. And yet Mr Kwikima did not have proof on this by way of an affidavit. In spite of this, it was Mr Kwikima's contention that the application did not I

A lapse as the right to appeal was a constitutional one. Furthermore, Mr Kwikima submitted that because the High Court and the Court of Appeal have concurrent jurisdiction in relation to applications for leave to appeal, it was his view that he could have brought this application directly to this Court without application first having to be made to the High Court. And so, he stressed, the fact that the B application was struck out on grounds of incompetence should not prejudice or in any way bar the applicant's right of appeal to the court. Finally, it was Mr Kwikima's contention that this court being the final Court of Appeal, it should not rule out applications such as this on grounds of technicalities as the High Court did in this matter. C

Upon close and anxious consideration of these submissions, it is apparent that the central issue of this application is the competence of this application having regard to the fact that the respondent was not served with the notice of motion. As already indicated, Mr Kwikima firmly maintains that despite the fact that the respondent D was not served, the application did not lapse, it still stood valid. At the outset, it is pertinent to state that it is common knowledge that this court is a creature of statute and the applicable rules. For its functional operations the applicable E legislations are the Constitution, the Appellate Jurisdiction Act, 1979 and the Court's Rules of 1979. In handling its work, the Court is guided by the provisions stipulated in these legislations and the rules. In the instant case as correctly pointed out by Mr Mtaki, the applicable rule is Rule 52(1). Under that rule it is F mandatory to serve the respondent as a necessary party with the notice of motion two clear days before the hearing. This was not done and so, as submitted by Mr Mtaki the application is not competent, it does not comply with the requirement of G the rules. It is my view that there is merit in Mr Mtaki's submission. This is so because it is clearly provided under rule 52(1) of the court's rules that the notice of motion among other relevant documents shall be served on all necessary parties which in this case

includes the respondent. It is a mandatory requirement which H even Mr Kwikima does not dispute. Mr Kwikima's argument that even though service was not affected on the respondent, the application still remained valid and competent because the right to appeal is a constitutional one and that the court has concurrent jurisdiction with the High Court is, with respect, attractive but untenable. In a somewhat similar situation, our predecessor the I

1997 TLR p29

LUBUVA JA

Court of Appeal for Eastern Africa in the case of Harnam Singh Bhogal t/a Harnam A Singh & Co v Jadva Karsan (1) stated:

`It is well settled law that a right to appeal can only be founded on a statute and that any party who seeks to avail himself of the right must strictly comply with the conditions prescribed by the statute.' B

For similar reasons, it is my view that the instant case is such that it should strictly comply with the requirements of the Appellate Jurisdiction Act, 1979 and the Court's rules. Unlike the situation in the case of Leonsi Silawyo Ngalai v Justine Alfred Salakana and The Attorney-General, (2) in which we held that in election C petition cases appeals lie to this court as a matter of right, in the present case as s 5 of the Appellate Jurisdiction Act, 1979 applies, leave to appeal is a necessary legal requirement. A further requirement is that application for leave should first be made to the High Court. With respect, Mr Kwikima's submission that he could D come up with this application to this Court without first applying to the High Court is misconceived. Consequently, in the circumstances of the case, I am increasingly convinced that the mandatory provisions of Rule 52(1) not having been complied with, the application was incompetent which in effect amounts to no application at all. E

This ground alone is sufficient to dispose of this matter. But there is yet another equally pertinent aspect which was raised by Mr Mtaki. I intend to deal with it briefly. As already intimated, on 1 April 1996, in Misc Civil Application No 122 of 1995, Mackanja, J struck out the application for leave to appeal to this Court. The F ground for that course of action was that the learned judge held the application was incompetent on account of the fact that the affidavit in support of the application was fatally defective. With the application for leave to appeal struck out what then is the legal basis for this application before me. Mr Mtaki, learned G counsel was of the view that with the application for leave to appeal struck out, there was no valid application before the High Court and so, consequentially, the applicant cannot be said to have complied with Rule 44. On the other hand, Mr Kwikima, learned counsel was of a different view. In his view, Rule 44 does not H necessarily envisage only valid applications. If I understood him correctly, it was his view that so long as he had first filed before the High Court an application irrespective of its competence or otherwise, it was sufficient compliance with the rule. I am settled in my view that Rules 43 and 44 of the court's rules envisage valid and competent applica- I

1997 TLR p30

A tions only. Applications which are invalid or incompetent as was the case in the instant case would not do.

Consequently, the application before me originating as it did from an invalid and incompetent application before the High Court is not proper. I would venture to think that the proper course for the applicant to take would be to file another proper application in terms of the rules and proceed with it accordingly. B
In the event, the application is dismissed with costs.
1997 TLR p30

OTTU (ON BEHALF OF P P MAGASHA) v ATTORNEY-GENERAL AND ANOTHER 1997 TLR 30 (HC) D

Court High Court of Tanzania - Dar es Salaam
Judge Mapigano JJJ, Kyando JJJ and Bubeshi JJJ E

CIVIL CASE 53 OF 1994
20 December 1996
Flynote
F Constitutional law - Right of appeal - Effect of s 27(1C) of Industrial Court of Tanzania Act 1968 as amended by Act 3 of 1990.
Labour law - Industrial court - Effect of s 27(1C) of Industrial Court of Tanzania Act 1968 as amended by Act 3 of 1990.
-Headnote
G The appellant had instituted a trade dispute in the industrial Court arising from the alleged wrongful termination of his services by his employer. The action was dismissed by the Industrial Court. The appellant was advised that no appeal lay against a division of the Industrial Court in view of the provisions of s 27 (1C) of the Industrial Court of Tanzania Act 1968 as amended by Act 3 of 1990. The appellant contended that this provision infringed his rights under article 13(6) of the H Constitution, which guaranteed the right of appeal against a decision of a court of law.
Held:
(1) That s 27(1C) deprived a person of his basic right of appeal or another legal remedy except on grounds of lack of jurisdiction and was therefore unconstitutional and invalid;
(2) That s 27(1C) was not saved by the provisions of article 30(2) of the I
1997 TLR p31
Constitution: there were no overriding public or societal interests A reasonably linked to the Constitution imposed under s 27(1C);
(3) That circumstances such as the constitution of the court; the elaborateness of its procedure, the permissible legal representation and the elegance and lucidity of the court's judgments were completely irrelevant to the issue in the present case. B
Case Information

The Court accordingly declared s 27(1C) unconstitutional.
Case referred to:
1. Kukutia Ole Pumbun v Attorney General [1993] TLR 159 (CA) C
Dr Tenga, for the plaintiff.
Salula, for the defendants.
[zJDz]Judgment
Mapigano J:
The facts in this case are in a nutshell and the questions to be decided are purely D legal and require very careful treatment. The plaintiff P P Magasha was employed by the National Pharmaceutical Company but the employment was terminated in 1991. He considered it wrongful and instituted a trade dispute in the Industrial Court in 1991 at Tabora against the company. At the conclusion of the proceedings the action was dismissed. He felt aggrieved by the decision but he E was appraised that no appeal could lie against it in view of the legal impediment expressed in s 27(1C) of the Industrial Court of Tanzania Act, 1968 as amended by Act No 3 of 1990. F
Section 27(1C) provides that every award and decision of the Industrial Court shall be final and not liable to be challenged, reviewed, questioned or called in question in any court save on the grounds of lack of jurisdiction in which case the matter shall be heard and determined by a full bench of the High Court. In his pleadings the plaintiff has averred that this section is at odds with the provision of art 13(6)(a) of the Constitution. G
Article 13(6) provides that `every person shall, when his/her rights and obligations are being determined, be entitled to a fair hearing by the court of law or other body concerned and be guaranteed the right of appeal or another legal remedy (whatever that may be) against the decisions of courts of law and other bodies H which decide on his rights or interests founded on statutory provisions'. It may be observed that this constitutional provision was already in place and force when s 27(1C) was enacted.
As indicated, the plaintiff has come to this court to question the I

A legality of the section, to urge upon us that the provision purports to take away the right conferred on him by art 13(6)(a), and to seek a declaration that the section, to the extent that it is inconsistent with the constitutional provision, is unconstitutional and therefore null and void. No doubt, as aforestated, it is really B imperative for us to handle this matter with extreme wariness, for in principle that is precisely as it must be. There is no question whatever that to declare a provision of a statute unconstitutional and invalid is invariably a matter of great moment, a fortiori where, as in the present case, the constitutional provision under reference has preceded the impugned statutory provision in point of time. C
The argument put forward by Dr Tenga on behalf of the plaintiff is that since s 27(1C) must be construed to mean what it says, namely, that a court or any other authority is precluded from inquiring into the legality and propriety of any decision of the Industrial Court save for matters of lack of jurisdiction, therefore, factual D errors or other errors in law fallen into by the

Industrial Court are not liable to be questioned or challenged before any such forum. Mr Salula for the respondents meets this argument by contending that inasmuch as s 27(1C) allows a person to go to the High Court it cannot be said to contravene art 13(6)(a) and we cannot help wondering whether this is not an evasive answer. E

The construction put on s 27(1C) by Dr Tenga is in our view the true and reasonable one. This provision pares away the right guaranteed by the Article, and to all intents and purposes such is exactly the intendment. Mr Salula has not F provided any effective rejoinder, and it seems to us that he has not addressed himself to the real issue. The complaint is not that a person is not allowed to go to the High Court at all. It is that his constitutional right to go there on appeal or otherwise is improperly abridged by the statutory provision.

G The argument advanced on behalf of the plaintiff is also that the limitations which are inherent in s 27(1C) have no plausible connection with the provisos prescribed under article 30(2), and reference is made to the judgment of the Court of Appeal in Kukutia Ole Pumbun v The Attorney-General, (1), in which two conditions were attached to the applicability of article 30(2) where a provision of a H law happens to be inconsistent with any of the constitutional provisions pertaining to the basic human rights, freedoms and duties. This is a powerful argument.

Mr Salula however submits that the decision in Ole Pumbun's case does not avail the plaintiff, because, according to him, s 6 of the Government Proceedings Act of 1967 with which the court was I

dealing in that case was held to be unconstitutional on the ground that it A completely precluded access to the court, unlike s 27(1C) of the Industrial Court of Tanzania Act. We are bound to disagree. So far as we can discern that was strictly not the ratio decidendi of that decision, at any rate the only one. And we think it is quite explicit that the rules laid down by the Court of Appeal in that B judgment are eminently capable and were meant to be of wider or general application. Quite frankly we have to acknowledge having failed to ascertain in what way s 27(1C) can ever tend to the overriding public and societal interests set out under article 30(2), how, in other words, the limitations imposed under that section can be reasonably linked to any of the interests prescribed under the article. We wholly agree and we hold, therefore, that Ole Pumbun's case avails the C plaintiff and that none of the provisions of article 30(2) can be called into play.

Mr Salula further submits that s 27(1C) cannot be impugned because, in the first D place, article 13(6)(a) gives a person aggrieved the right to another legal remedy besides an appeal. It is quite true that the article guarantees two alternative remedies, ie, the right of appeal or the right to have recourse to another legal redress. But we should hasten to point out that this circumstances does not E effectively meet the objection taken by the plaintiff in the instant case, namely, that the section goes a long way to negate each of those two alternative rights. As Dr Tenga says, decisions of the Industrial Court which do not comport with the weight of evidence, or which are given per incuriam or in deliberate disregard to the relevant authorities,

are by virtue of the section not impugnable. Yet these are the F things which would probably give rise to the majority of the complaints against the decisions of the Court.
Secondly, it is the opinion of Mr Salula that the Industrial Court is not a one-tier organ, and that this renders wrong the idea that challenging the decisions of the court only on grounds of lack of jurisdiction is encroaching upon a person's right G given under article 13(6)(a). It is also his observation that the proceedings of the court are held by a judge of the High Court and assisted by two assessors, that an elaborate procedure obtains; that appearance by advocate is allowed; and that in this case the proceedings were concluded by a lucid judgment. Upon all this Mr H Salula makes the argument, a startling argument, that there is no possibility of any abuse of power taking place in the court.
Beyond doubt, some of those assertions cannot stand the test of logic, and some are neither here nor there. Mr Salula has not shown I
1997 TLR p34
MAPIGANO J
A how the Industrial Court is not a one-tier organ. For ourselves, we think there is no way around the fact that the Industrial Court has all the basic hallmarks of a court of first instance when exercising that particular jurisdiction, and that it is B essentially a one-tier organ. We also think it is idle to deny that s 27(1C) purports to whittle down the right given under art 13(6)(a). And we consider circumstances like the constitution of the court, the elaborateness of its procedure, the permissible legal representation and the elegance or lucidity of the court's judgments to be completely irrelevant to what is at issue in this case.
C We have ultimately taken the view that s 27(1C) does not abide by art 13(6)(a). The section has the effect of curtailing the basic right guaranteed under the Article, as demonstrated supra, and the language of the section precludes any other conclusion. As already mentioned, we also take the view that the section falls outside the purview of article 30(2). We so hold. D
This action therefore succeeds. We are amply satisfied that s 27(1C) of the Industrial Court of Tanzania Act, 1967 is unconstitutional and invalid to the extent that it deprives a person of his basic right of appeal or another legal remedy except on grounds of lack of jurisdiction. E
We so declare.
1997 TLR p35

HAMED RASHID HAMED v MWANASHERIA MKUU AND OTHERS 1997 TLR 35 (CA) A

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga JA B

ZNZ CIVIL APPLICATION 9 OF 1996
30 December 1996
Flynote

Appeal - Application to lodge memorandum of appeal out of time - Requirements. C
-Headnote
The applicant applied for leave to lodge a memorandum of appeal out of time. Counsel for the fourth respondent noted preliminary objections to the application, contending that (1) the application had not been initiated by a Notice of Motion as required by Rule 45 of the Court of Appeal Rules, but by a document titled D `Application for Leave to Appeal Out Of Time'; (2) the affidavit in support of the application was defective in that the deponent had not stated his name and religion before making the statement but had merely affirmed at the end thereof that what E he had stated above was true to the best of his knowledge and belief; and (3) that the deponent had failed to disclose the source of his information when he said that he ``was made to believe that the last day for lodging the appeal was 7 October 1996''.
Held:
(i) That non-compliance with the Rule was not fatal: the irregularity F was not one of substance but was one which could be cured by the Court granting an amendment;
(ii) That non-compliance with the practice of making the oath or affirmation at the commencement of an affdavit was not fatal: the deviation was not an irregularity which went to the substance; G
(iii) That it was clear that if the deponent's affidavit was read properly it did not give the impression that he had been led to believe by someone else that the last day for lodging the appeal was 7 October 1996. His mistaken impression was formed after his own independent study and understanding of the court proceedings. There was accordingly no ground for requiring him to disclose the source of his belief. H
Case Information
Preliminary objections dismissed.
Cases referred to:
1. Msoza Transport Ltd v Nzareki Investment Co Ltd Civil Application No 16 of 1992 (unreported) I
1997 TLR p36
KISANGA JA
A 2. George Shambwe v Attorney General and Anor [1996] TLR 334
Tenga and U K Haji, for the applicant.
Muccadam and Mulamula, for the fourth respondent.
[zJDz]Judgment
Kisanga, JA:
B This is a preliminary objection taken to an application for leave to lodge the memorandum of appeal out of time. The objection is raised by Mr Muccadam and Mr Mulamula, learned advocates, who represent the fourth respondent, while the applicant whose application is being objected to is advocated for by Dr Tenga and Mr Ussi Khamis Haji. C
The preliminary objection alleges that the application is basically defective. To start with, the allegation says, the application was not initiated by a Notice of Motion as is required by Rule 45 of the Court of Appeal Rules. Instead it was commenced by a document merely titled

`Application for Leave to Appeal Out of Time'. Dr Tenga D conceded that there was no strict compliance with Rule 45 of the Court of Appeal Rules, but rightly contended that this non-compliance was not fatal. For, the substance of the application is quite clear. The irregularity is not one of substance; it is one which is curable by the court granting an application for an appropriate amendment. That ground of objection, therefore, fails. E

The next assertion was that the affidavit in support of the application was defective. The affidavit did not take the usual format whereby the deponent, inter alia, states his name and religion, and makes oath or affirmation before making the statement. Instead the deponent made the affirmation at the end of his statement to the following effect: F

`I, ... do hereby affirm that what is stated above is true to the best of my knowledge and belief.' G

Dr Tenga rightly pointed out that there is no provision under the Court of Appeal Rules requiring a deponent to make the oath or affirmation at the beginning instead of at the end of his deposition. He conceded that the usual practice in the Court of H Appeal is for a deponent to make oath or affirmation before making the statement, but submitted that non-compliance with this practice was not fatal. I entirely agree. For, the whole purpose of requiring a deponent of an affidavit to make oath or affirmation is to make such a deponent commit himself to tell the truth. While the practice in this court has been to require the deponent to undertake such commitment before I

making his statement, I am strongly of the view that the deviation by the deponent A in this case is only an irregularity which did not go to the substance. Because the commitment to be truthful remains the same whether it is made before or after making the statement. The position would have been different, however, if no such commitment was undertaken at all in which case the deposition would not constitute an affidavit. The objection on this ground, therefore, also fails. B

Finally objection was taken that the deponent failed to disclose his source of information when in paragraph 6 of the affidavit he said, inter alia, that: C

`... I was made to believe that the last day for lodging the appeal was 7th October, 1996.'

Mr Muccadam insisted that the deponent was duty bound to disclose the person who made him believe that the last day for lodging the appeal was 7 October 1996, D and that failure to do so entitled this court to strike out the application. In support of this submission counsel cited the case of Msoza Transport Ltd v Nzareki Investment Co Ltd (1).

Mr Muccadam's submission on this point has its roots in para 6 of the affidavit but E it seems necessary to consider that paragraph together with para 7. The two paragraphs allege:

`6. THAT due to my wrong calculation of the time for the lodging of the memorandum of appeal as provided by Rule 83 of the Tanzania Court of Appeal Rules, 1979 I was made to believe that the last day for lodging the appeal was 7th October, 1996. F

7. THAT this mistake was done by me alone and is not in any way connected with the Applicant and that I beg that it should be treated as human error.' G

If the two paragraphs are read together, they do not, in my view, give the impression that the deponent was made to believe by someone else that the last day for lodging the appeal was 7 October 1996. To my mind they give the impression that the mistake in attributable to the deponent alone who H misconstrued or misinterpreted the court proceedings and came to the erroneous view as to the last day for lodging the appeal. In other words the deponent's belief that the last day for lodging the memorandum of appeal was 7 October 1996 was formed following his own study and understanding of the court proceedings which were duly supplied to him by the court registry. Nobody could have given him any relevant information on this I

A point other than that as was contained in the court proceedings. If this view is correct, then there could be no ground for requiring the deponent to disclose the source of his belief which is based on his own study and understanding of the documents which, it has not been disputed, were duly supplied to him by the court registry.

B Dr Tenga went on to submit that even if it is found in Mr Muccadam's favour that the deponent did fail to disclose the source of his belief, that alone would not justify the striking out of the application. In his view it would be open to this court to order an amendment of the affidavit or the filing of a supplementary affidavit to rectify the error, and in this connection he referred me to the decision of this court C in the case of George Shambwe v Attorney-General and Another (2). I must state at once that Shambwe's case has no relevance to the present case in as much as it is concerned with what the High Court should have done in a matter which was before it, and in which the provisions of the Civil Procedure Code D applied. The matter before me is an application for leave to lodge the memorandum of appeal out of time. Such a matter was never, and could not be, before the High Court. It is a matter which is governed not by the provisions of the Civil Procedure Code but by the Appellate Jurisdiction Act and the Court of Appeal E Rules. In other words what was said in Shambwe's case where the provisions of the Civil Procedure Code applied can have no relevance whatsoever to the present case which is governed by a different set of rules, and where the provisions of that Code do not apply.

F Having said that, and in the light of the view I have taken of the matter, I desire not to dwell any more on this point. That is to say, after holding that there was no basis for requiring the deponent to disclose the source of his belief as to the last date for lodging the memorandum of appeal, it is now not necessary for me to rule on Dr Tenga's submission that it is open to me to allow an amendment to the G affidavit or the filing of a supplementary affidavit to rectify the error.

In the final analysis, therefore, the preliminary objection fails and it is dismissed with costs. I grant Dr Tenga's application for the amendment of the application so H as to include in the title the words Notice of Motion. Unless a reference from this ruling to the full court is contemplated, I direct that the application now proceeds to hearing. I

DANIEL MLINGWA v MWAJA MKOTYO 1997 TLR 39 (HC) A

Court High Court of Tanzania - Dar es Salaam
Judge Msoffe J

CIVIL APPEAL 57 OF 1996 B
10 January 1997
Flynote
Damages - Adultery - Proof of - Payment of dowry.
-Headnote
The appellant had sued the respondent in the Primary Court at Dodoma for C adultery, claiming seven head of cattle as compensation. The trial court held that the respondent had committed adultery with appellant's lawful wife and awarded three head of cattle as compensation. The District Court on appeal held that there was no valid marriage between the appellant and PW 2. In a further appeal D
Held:

(i) That there was no serious dispute that there was a valid marriage contracted under customary rites between the appellant and PW 2;

(ii) That the magistrate who had sat in the first appeal had erred when he said that payment of a dowry was a necessary prerequisite to validate a marriage. Non-payment of dowry did not invalidate an otherwise valid marriage. E

Case Information
Appeal allowed and decision of Primary Court restored.
Cases referred to:

1. Lalata Msangawe v Henry Mwamlima [1979] LRT No 3 F
2. Wilson Thomas v Republic [1979] LRT No 26

Nyangarika for the appellant.
Njulumi for the respondent. G
[zJDz]Judgment
Msoffe J:
In the Primary Court at Chipanga, Dodoma, the appellant sued the respondent in a claim of seven head of cattle being compensation for adultery. The said trial court was satisfied that there was a valid and subsisting marriage between the appellant and PW2 Veronica Chakachaka and that the respondent did actually commit H adultery as evidenced in the fact that he has since been living with PW2 as her husband. In the circumstances, the said court was of the view that since adultery was proved and established there was no way the respondent could escape civil liability. It however held that I

MSOFFE J

A the claim of seven head of cattle was on the high side; and so made an award of only three head of cattle for compensation of the adultery in issue.

Dissatisfied, the respondent appealed to the District Court at Dodoma where he won. The District Court made a number of findings and conclusions, but in brief it B was of the view that there was no valid marriage between the appellant and PW2; and therefore that the claim would have no legal basis.

This is an appeal against the decision of the District Court. Mr Nyangarika learned advocate appeared for the appellant. Mr Njulumi learned advocate appeared and resisted the appeal on behalf of the respondent. Both counsel have filed written C submissions to which the court is grateful for their useful assistance.

There is no dispute that the case in the two respective lower courts was essentially decided on the basis of credibility of witnesses. As this court has held D on more than one occasion, credibility is a question of fact and an appeal court should not disturb a finding of fact based on credibility unless it is manifestly unreasonable -- Lalata Msangawe v Henry Mwamlima (1) and Wilson Thomas v R (2). The issue is whether there was any material basis upon which the appellate E District Court could fault the decision of the trial Primary Court which was based on the credibility of witnesses as aforesaid.

In the petition of appeal a total number of five grounds have been raised and F canvassed in submissions made by counsel. However, all of them basically allege that the decision of the District Court was against the weight of the available evidence. In the premise, I propose to deal with the appeal generally in determining whether or not there is any valid complain in the appeal.

In my judgment, the appeal has merit. A look at the case in its entirety will show G that there is no serious dispute that there is a marriage contracted under customary rites between the appellant and PW2. All the witnesses (including the respondent) except perhaps PW4 William Chakachaka were affirmative of this fact. If so, the view held by the District court that there was no evidence establishing that the said marriage existed would appear to me to be unsupported by the evidence on record. H

Perhaps one comment which, I hope, may be of benefit to the learned Resident Magistrate who sat in the aforesaid first appeal. Somewhere in the judgment he appeared to be saying that payment of dowry would be a necessary prerequisite to validate a marriage. A look at the provisions of ss 13, 14, 15, 16 and 17 of The Law of I

Marriage Act No 5 of 1971 will show that this view is not correct as it is nowhere A mentioned therein that payment of dowry should be necessary in a valid marriage. Non-payment of dowry would not invalidate an otherwise valid marriage.

Much was said by learned counsel about whether or not there would be a rebuttable presumption of marriage under s 160 of The Law of Marriage Act 5 of B 1971 in the circumstances of the case. I need not waste much time on this point which apparently was not canvassed by anybody in the two respective lower courts. It will therefore be unfair to deal with

it at this stage. However, if one may be excused to say in passing, the issue shall not arise at all. One says so because it C was not an issue before the two lower courts as aforesaid; and in any case the issue would not arise in the midst of evidence by the relevant witnesses that a marriage actually existed between the appellant and PW2. If so, why should there then be talk or mention about a presumption. D

The appeal is allowed with costs here and below. The decision of the District Court is set aside and that of the trial Primary Court is restored. E

1997 TLR p41

FORTUNATUS MASHA v WILLIAM SHIJA AND ANOTHER 1997 TLR 41 (CA) F

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga JJA, Mnzavas JJA and Lubuva JJA G

CIVIL APPEAL 43 OF 1996

10 January 1997

(Appeal from the ruling of the High Court of Tanzania, Mwanza, Chipeta J.) H

Flynote

Civil Practice and Procedure - Appeals - Notice of appeal - Requirements of - Effect of Rule 76(3) - Failure to state whether intended appeal against whole or part only of decision not fatal.

Civil Practice and Procedure - Appeals - Record of appeal - Record I

1997 TLR p42

A not containing drawn or extracted order of appeal - Rule 89(1)(h) of Court of Appeal Rules - Such failure renders the appeal incompetent.

-Headnote

In the appeal, counsel for the respondent took two preliminary points, viz (1) that B the notice of appeal was fatally defective as it failed to state whether the intended appeal was against the whole or part only of the decision; and (2) that the appeal was incompetent because the record did not contain the drawn or extracted order of appeal.

Held:

C (i) The failure to state whether an intended appeal was against the whole or part only of the decision was not fatal;

(ii) That Rule 89(1)(h) and (2) of the Court of Appeal rules rendered incompetent an appeal where there had been a failure to extract the decree or order.

Case Information

D Appeal declared incompetent and dismissed.

Cases referred to:

1. The Commissioner of Transport v Attorney General of Uganda and Anor [1959] EA 329

2. Juma Mtale v K G Karmali Civil Appeal No 11 of 1993 (unreported)

E 3. The National Bank of Commerce v Methusela Magongo Civil Appeal No 30 of 1994 (unreported)

4. Arusha International Conference Centre v Damas Augustine Ndemasi Kavishe Civil Appeal No 34 of 1988 (unreported)

F 5. Leonsi Silawyo Ngalai v Justine A. Salakana and Anor Civil Appeal 38 of 1996 (unreported)

Makani and Mutaitina for the appellant.

Malaba and Mwale for the second respondent.

[zJDz]Judgment

Kisanga JA: G

There is before us an appeal against the ruling of the High Court (Chipeta, J) on a matter pertaining to an election petition. When the appeal was called on for hearing Mr Mwale, learned counsel for the first respondent, took a preliminary objection in terms of Rule 100 of the Court of Appeal Rules. H

The objection was based on three grounds. The first ground in effect alleges that the notice of appeal does not comply with the requirements of Rule 76(3) of the Court of Appeal Rules and the format made under that Rule as set out in Form D of the First Schedule to the Court of Appeal Rules. The relevant portion of Rule 76(3) provides that: I

1997 TLR p43

KISANGA JA

`(3) Every notice of appeal shall state whether it is intended to appeal against the whole or A part only of the decision ...'

The appellant's notice of appeal had simply stated that the intended appeal was against the particular ruling of the High Court. Mr Mwale vigorously contended that failure to state whether the appeal was against the whole or part only of that ruling B was necessarily fatal; and in this connection he drew our attention to the use, in the provision, of the word `shall' which, according to him, made the requirement mandatory.

The appellant is represented by Mr B Makani and Mr Mutaitina, learned advocates. C In response to Mr Mwale's contention, Mr Makani in effect conceded that there was no strict compliance with the provisions of Rule 76(3) but submitted that such non-compliance was not fatal.

We entirely agree with Mr Makani's submission. We think that the use of the word D `shall' does not in every case make the provision mandatory. Whether the use of that word has such effect will depend on the circumstances of each case. For our part we think that the word `shall' in Rule 76(3) does not have the effect of making that provision mandatory, nor do we think that Parliament can have intended so. E

Failure by a party to state whether the intended appeal is against the whole or part only of the decision does not in any way prejudice the opposite side. Mr Mwale argued that he might have been prejudiced or ill-effected by having to examine the whole ruling while the appeal was in fact against part only of the ruling, in which F case he wasted or might have wasted his

valuable time and energy doing unnecessary work. With due respect to counsel, however, we find not much force in this argument. Our understanding is that Mr Mwale started preparing for the appeal seriously only after receiving the record of appeal including the G memorandum of appeal. Upon studying the grounds of appeal he was then able to know the extent of the appeal, in which case if he found that the appeal was against part only of the ruling he would limit himself accordingly and there was no need to prepare himself in respect of the whole ruling. For these reasons we think H that the failure to comply strictly with the provisions of Rule 76(3) was not fatal, and if this was the only ground of objection to the appeal we would not sustain the objection, although of course we stress the importance of complying with the Rules. That ground, therefore fails.

Objection was also taken that the record of appeal did not con- I

1997 TLR p44

KISANGA JA

A tain the certificate of the Registrar as to the exact time that was necessary for the preparation and delivery of the record to the appellant. Again there is little substance in this ground and, indeed, Mr Mwale argued it only half-heartedly. For, the record at p 82 contains a certificate duly issued by the District Registrar and showing, inter alia, that on 2 May 1996 he received from the appellant's counsel a B request for the supply to him of the record of proceedings which was duly supplied on 6 September 1996, and that the period up to this latter date should be excluded in computing the time within which to lodge the appeal. We could find nothing wrong with that. The purpose of the Registrar's certificate is to ensure that C an appellant lodges the record of appeal within sixty days of filing his notice of appeal or within sixty days of the supply to him of the record of proceedings. The record of appeal was lodged in court on 4 November 1996. This was within sixty days from 6 September 1996 which, according to the District Registrar, was the D date the period of limitation started to run against the appellant. Therefore, this ground of objection also fails.

The third and last ground of objection was that the appeal is incompetent because the record of appeal does not contain the drawn or extracted order in appeal, and E in support of this ground Mr Mwale cited numerous authorities of this Court and of its predecessor, the Court of Appeal for East Africa.

In response to this submission Mr Makani concede the non-compliance with Rule F 89(1)(h) of the Court of Appeal Rules which requires the record of appeal to include the extracted order but strenuously contended that this did not render the appeal incompetent. In his view such non-compliance was merely a procedural or administrative irregularity which renders the appeal incomplete and which could be rectified by making an appropriate order for the filing of a supplementary record. G

The law as it now stands is that failure to extract the decree or order in terms of Rule 89(1)(h) and (2)(v) of the Court of Appeal Rules renders the appeal incompetent, see for instance The Commissioner of Transport v The Attorney-General of Uganda and Another (1) and Juma Mtale v K G Karmali (2). H The finding that an appeal is incompetent has constantly resulted in striking out such appeal, see for instance The National Bank of Commerce v Methusela Magongo

(3). There is no room for Mr Makani's view that non-extraction of the decree or order is a mere procedural or administrative irregularity. In Arusha International Conference Centre v Damas Augustine I
1997 TLR p45
KISANGA JA
Ndemasi Kavishe (4) it was held that such non-compliance was fundamental and A went to the root of the matter. Likewise Mr Makani's effort to urge us to grant an order to lodge a supplementary record of appeal or to invoke Rule 3 and direct a departure from the rules cannot bear any fruit. This court adequately considered such submissions in the Arusha International Conference Centre case cited above and found them untenable. B
Mr Makani cited the recent decision of this Court in the case of Leonsi Silawyo Ngalai v Justine A Salakana and Another (5). There the Court had occasion to say this: C

`We need however to point out for future guidance, that insufficiency or incompleteness of the record of appeal is not a ground for incompetency of an appeal, because such a defect is rectifiable by an appellant at any stage of the proceedings as provided under sub-rule 3 of Rule 92 of the Tanzania Court of Appeal Rules, 1979 ...' D

Counsel took the view that consistent with this decision non-extraction of the decree or order only constituted an insufficiency or incompleteness which did not make the appeal incompetent. With great respect, however, we do not agree. First, it is not apparent from the E judgment cited what kind of insufficiency or incompleteness the court was considering or was having in mind because the allegation of insufficiency or incompleteness had been withdrawn by the party raising it before the Court heard arguments on it. However, we are of the view that where by reason of non-extraction of the decree or order, as in this case, the appeal is rendered F incompetent, the issue of insufficiency or incompleteness does not really arise. The position that arises is simply one of non-existence of the appeal. Because insufficiency or incompleteness connotes something which is in existence and which can be improved upon, say by adding to it. An incompetent appeal is one G which in law did not come into existence although efforts were made to try to bring it into existence. In such circumstances, therefore, one cannot properly talk of there being an insufficient or incomplete appeal which one can improve upon by filing a supplementary record, because in law no appeal came into existence in the first instance; there was only a purported appeal, if you wish. H
Mr Makani also relied on Rule 27(1) of the Elections (Election Petitions) Rules 1971 in his valiant attempt to urge us to overrule the objection. That sub-rule says that: I
1997 TLR p46
KISANGA JA

A `27-(1) Save as is expressly provided to the contrary in these Rules, no petition shall be dismissed for the reason only of non-compliance with any of the provisions of those rules, or for the reason only of any other procedural irregularity unless the court is of the opinion that such non-compliance or irregularity has resulted or is likely to result into miscarriage of justice.' B
We have to state at once that the reference to this provision was obviously misconceived. The Elections Rules govern the conduct of election cases when they are before the High Court. The

clear demonstration of this is the fact the word `court' which is used in the sub-rule is defined in Rule 2 to mean the High Court. C The preliminary objection before us is based not on any provision of the Elections Rules but on the provisions of the Court of Appeal Rules. The conduct of the present proceeding before us, therefore cannot be governed by the Elections Rules. D
Of course the Elections Rules would have been relevant if we were dealing with a matter which had been before the High Court. In that case we would seek to apply the Elections Rules in the manner that the High Court would have done. But the matter before us ie the preliminary objection, is a matter which was not and could not have been before the High Court. In the circumstances, therefore, there could E be no room at all for our invoking the Elections rules in dealing with the preliminary objection.
Mr Malaba, learned Senior State Attorney appearing for Republic, the second respondent, rightly supported the objection. F
In the result, and for the reasons set out above, the preliminary objection is sustained. The appeal is incompetent for non-extraction of the order in appeal in terms of Rule 89(1)(h) of the Court of Appeal Rules, and it is accordingly struck out with costs. It is now open to the appellant, if he so wishes, to institute the appeal afresh by making the appropriate application before the High Court. G
1997 TLR p47

WILLOW INVESTMENT v MBOMBA NTUMBA AND TWO OTHERS 1997 TLR 47 (HC) A

Court High Court of Tanzania - Dar es Salaam
Judge Mapigano J B

CIVIL CAUSE 118 OF 1996
6 February 1997
Flynote
Civil Practice and Procedure - Summons - Service - Rule 30 of Order 5 CPC - Service by DHL equivalent to service by post. C
Civil Practice and Procedure - Jurisdiction - Enforcement of foreign judgments - Parties both foreigners - Immaterial that owners of one party Tanzanians.
-Headnote
The second respondent brought an application for the review of an order passing D judgment on it based on the judgment of the Court of Appeal in Lubumbashi, Zaire. Summons had been served on the second respondent by DHL and in the absence of the second respondent the applicant was allowed to prove the suit ex-parte by way of affidavit. E
Held:
(i) That the parties were both foreigners and the applicant had given no good reason why it had failed to have the decree executed in Zaire. It mattered little that the applicant was

owned by Tanzanians. In the absence of a proper nexus between the litigants and Tanzania, the Tanzanian court had no jurisdiction in the matter; F

(ii) Service by DHL was essentially service by post and accordingly the provisions of Rule 30 of Order 5 CPC were applicable. As no return of service or other notification had been received from Zaire, the requirements of Rule 30 had not been met. The proceedings against the second respondent and the Court order were therefore set aside as nullities. G

Case Information

Application allowed.

No cases referred to.

Shinganya for the applicant.

Dr Mwaikusa for the second respondent. H

[zJDz]Judgment

Mapigano J:

OCS Company has brought an application for review of the order dated 27 September 1996 passing judgment against it on the I

1997 TLR p48

MAPIGANO J

A strength of the depositions contained in Costa Shinganya's Affidavit made the day before. The application is opposed by Willow Investment, the decree-holder.

In short the matter arises in this way: Willow instituted a suit against OCS and another in the lower court of Lubumbashi in Zaire and the action succeeded. An appeal taken against that judgment to the Court of Appeal in Lubumbashi was B dismissed. The judgment was not executed in Zaire and when Willow discovered that another Zairean company which was allegedly indebted to OCS was possessed of goods in Dar es Salaam it filed a plaint in this Court seeking C judgment and decree against OCS in the sum adjudged by the Lubumbashi Court and an order that the decree be executed by attachment and sale of the said goods. Upon an application by Willow this court directed that service of summons to OCS be effected by DHL. On 26 September 1996, ie nine days later, Mr Maira D counsel for Willow informed the Court that service has already been effected, and since OCS did not show up on the day appointed in the summons, Willow was allowed to prove the suit ex-parte by way of affidavit. As mentioned above, judgment was entered on the morrow in favour of Willow in the sum adjudged and decreed by the Zairean Court on the basis of the materials set out in Costa Shinganya's affidavit. E

The memorandum of review contains four grounds. The first ground is that this court had no jurisdiction to entertain the suit. The second ground is that the whole proceedings amounted to an abuse of the court process. The third ground is that F the case was actually decided without OCS having been served with summons or otherwise given an opportunity to be heard. And the fourth ground, which is framed as an alternative, is that the matter was res judicata.

In his address Dr Mwaikusa who advocated for OCS dealt with the first and G second grounds together, and I think properly so. He expressed the view that the jurisdiction given to this Court to adjudicate on matters arising outside Tanzania is restricted and does not extend to causes in

which the parties are foreigners. He pointed out that Willow and OCS are foreigners, that the cause of action arose in H Zaire and was adjudicated upon by the Courts in Zaire, and that Willow has not given any good reason whatever why it has failed to have the decree executed in Zaire. To this counsel for Willow, Mr Shinganya, has replied that what this Court stated in a previous case between the same parties, ie Misc Civil Cause No 34 of 1996, is applicable to the present proceedings, and that the shareholders and directors of Willow are Tanzanians. I

1997 TLR p49

MAPIGANO J

Dr Mwaikusa is right. The parties in this case, ie Willow and OCS, are both A foreigners, and it matters for little that Willow is owned by Tanzanians. It is true there is nothing in the evidence that was presented by Willow which shows why it has not executed the decree in Zaire. Surely the High Court of Tanzania cannot be and should not pretend to be, an international judicial tribunal to which foreign litigants, all and sundry, can resort to. As Dr Mwaikusa put it, there must be a B proper nexus between litigants and Tanzania.

In regard to the third ground of appeal Dr Mwaikusa makes the substantial point, and Mr Shinganya concedes, that service by DHL is essentially service by post, C and, accordingly, the provisions of rule 30 of Order 5 CPC are applicable. The rule provides that service by post may be deemed to have been duly effected if (a) the summons is returned by the defendant endorsed with an acknowledgment of receipt; or (b) a letter or other document is received from the defendant indicating that he received the summons; or (c) evidence is produced that a postal packet D was received by the defendant, supported by a certificate of an order of the court that the postal packet contained the summons. Dr Mwaikusa points out, correctly, that no such summons or document was received from Zaire and no such evidence was presented to this Court before the order for ex-parte proof was given. This is a powerful submission and must be accepted. The matter was E clearly governed by Rule 29 and the provision is one which ought to have been observed.

But there is nothing at all in the point raised in the fourth ground of the F memorandum. In Misc Civil Cause No 34 of 1996 Willow had sought the registration and direct enforcement of the Zairean judgment, and the application was made under Cap 8 of the Revised Laws. Objection was taken by the respondent, Gecamine, and sustained. It is true the application was dismissed for want of jurisdiction, but there is nothing that I stated in my order which is relevant G to the present matter or which can render this matter res judicata.

Mr Shinganya has raised two points in the course of his address. The first is the contention that this application is defective, on the ground that the memorandum is not accompanied by a copy of the decree. The second point is that the application is misconceived and that what OCS should have done is to bring an application for setting aside the decree, under Rule 13 of Ord 9 CPC. Dr Mwaikusa's answer, H which I am bound to accept, is that it would not have made any sense for OCS to file a copy of the decree when there was one in the court record already, and that OCS is not just aggrieved I

1997 TLR p50

A by the ex-parte judgment but is also contesting the jurisdiction of this Court to entertain the suit.

This application therefore succeeds. The proceeding against OCS and the order given by this Court on 27 September 1996 are set aside as nullities, and Willow Investment is to pay the costs. B

1997 TLR p50

ALHAJI A J MUNGULA v BARAZA KUU LA WAISLAM WA TANZANIA 1997 TLR 50 (HC) C

Court High Court of Tanzania - Dar es Salaam
Judge Mapigano J D

MISCELLANEOUS CIVIL CAUSE 6 OF 1996

7 February 1997

Flynote

E Review - Which bodies subject to - Baraza Kuu La Waislam Wa Tanzania (BAKWATA) - Decision of BAKWATA to remove employee from office - Decision not subject to review.

-Headnote

F The applicant was the Executive Secretary of Baraza Kuu La Waislam Wa Tanzania (BAKWATA) but was removed from office without having been afforded the opportunity of a hearing. He sought an order of certiorari to quash the decision.

Held:

(i) An order of certiorari could lie against private bodies provided the body discharged a public function; G

(ii) Judicial review would be confined to the decisions of BAKWATA which pertained to the performance of a legal function: its decision on matters in respect of the domestic relationship between it and its officers would not be subject to review.

Case Information

Application refused. H

Case referred to:

1. R v Panel on Take-overs and Mergers [1987] 1 All ER 564

Mkoba for the respondent.

Kamba for the Attorney-General. I

1997 TLR p51

[zJDz]Judgment

Mapigano J: A

The applicant was the Executive Secretary of the Baraza Kuu La Waislam Wa Tanzania (Bakwata) up to February, 1996 when he was given the sack. He has described Bakwata as an incorporated religious organization whose objective is to promote the Islamic faith. B
He has deposed to having heard his removal from office being broadcast on Radio Tanzania on 25 February 1996, and to having read an article run by the Daily News of next day on the same subject. He has also deposed to the fact that his removal came to him as a complete surprise, as he had not been afforded any opportunity of being heard before the action was taken. Assuming, as I must do for the C purpose of the instant application, that these depositions are true, then his complaint that natural justice has not been done to him is well grounded. He is seeking leave to apply for an order of certiorari to quash the decision of Bakwata. D
The issue arises as to whether Bakwata is a body that is subject to judicial review. On behalf of the applicant, Mr Mkoba, learned advocate, says that Bakwata is such a body and his argument is on the following lines: Bakwata is admittedly a private body. There was a time when certiorari did not lie against private bodies. It E is no longer so. It is now accepted that such order can lie against such bodies provided the body in question discharges a public function. The determinant factor is what a body is doing and not how it was formed. F
I accept Mr Mkoba's submission as correctly stating the current state of the law. Mr Mkoba has referred this Court to the case of R v Panel on Take-Overs and Mergers (1), decided by the Court of Appeal of England, and it is unnecessary for me to say with what profound respect I regard any judgment or observation of that G Court. In that case counsel for the Panel had submitted that review jurisdiction only extends to bodies whose power is derived from legislation or the exercise of the prerogative. The argument on behalf of the applicant was that that view is too narrow, and that regard has to be had not only to the source of the body's power, but also to whether it operates as an integral part of a system which has a public H law character, and is supported by public law in that public law sanctions are applied if its edicts are ignored, and performs what might be described as public law functions. The Court of Appeal went along with the applicant's argument and held, vide the headnote, that: I
1997 TLR p52
MAPIGANO J
A `In determining whether the decisions of a particular body were subject to judicial review, the court was not confined to considering the source of the body's powers and duties but could also look to their nature. Accordingly, if the duty imposed on a body, whether expressly or by implication, was a public duty and the body was exercising public law functions, the court had jurisdiction to entertain an application for judicial review of that body's decisions.' B
In the course of his judgment Donaldson MR looked back at what had been judicially decided in the last two decades or so. He observed, and I think it also bears repeating here, that: C

`The requirement that the body should have a duty to act judicially was deleted in O'Reilly v Mackman [1982] 3 All ER 680; and in Council of Civil Service Unions v Minister for the Civil Service [1984] 3 All ER 935, the supervisory jurisdiction of the Court was extended to a person exercising purely prerogative power; and in Gillick v West Norfolk and Wisbech Area Health Authority [1985] 3 All ER 402, Lord Fraser and Lord Scarman expressed the view obiter

that D judicial review would extend to guidance circulars issued by a department of state without specific authority.'

He went on to observe at 577 that: E

`In all the reports it is possible to find enumerations of factors giving rise to the jurisdiction, but it is a fatal error to regard the presence of all those factors as essential or as being exclusive of other factors. Possibly the only essential elements are what can be described as a public element, which can take many forms, and the exclusion from the jurisdiction of bodies whose source of power is consensual submission to its jurisdiction.' F

And therein lies the obstacle to the present application.

It is wrong for Mr Mkoba to contend that Bakwata discharges public functions. Mr Mkoba would have this Court accept, but I cannot, that Bakwata officiates G marriage ceremonies and that it is legally charged with the function of conciliating matrimonial difficulties. Mr Mkoba seems to be unaware that the statue has been amended. Even supposing that Bakwata were still performing such functions, I would still hold that this Court is not competent to entertain the intended application. I would take the view that judicial review would be confined to the H decisions of Bakwata which pertain to such legal functions, and that there would be nothing which would sufficiently bring its decision on matters respecting the domestic relationship between it and its officers within the reach of judicial review. I

1997 TLR p53

In these circumstances I feel bound to conclude that this application is A misconceived. It is accordingly refused.

1997 TLR p53

HAMED RASHID HAMED v MWANASHERIA MKUU AND THREE OTHERS 1997 TLR 53 (CA) B

Court Court of Appeal of Tanzania - Dar es Salaam C
Judge Kisanga JA

CIVIL APPLICATION 9 OF 1996 D

12 February 1997

Flynote

Civil Practice and Procedure - Appeals - Memorandum of appeal - Amendment of - Rule 47(2) - Failure to amend after leave granted - Leave ceasing to have effect after time period prescribed by Rule 47(2) expires. E

-Headnote

The applicant applied for leave to lodge the memorandum of appeal out of time. The applicant had previously granted the applicant leave to amend the application without specifying the time

within which to effect the amendments. The applicant had however failed to effect the amendments within 48 hours of the giving of leave as required by Rule 47(2). F

Held:

(i) As the applicant had failed to comply with the requirements of Rule 47(2) the leave which had been granted to effect the amendments had ceased to have effect; G

(ii) The applicant had no intention of pursuing the application seriously and the only reasonable course open was to strike out the application as being unmaintainable in law. H

Case Information

Order accordingly.

No cases referred to

Dr R Tenga and C Tenga for the applicant.

Maccadam for the fourth respondent.

[zJDz]Judgment

Kisanga JA:

This is an application for leave to lodge the memorandum of I

1997 TLR p54

KISANGA J

A appeal out of time, and it is a second time that the matter has come before me. It came before me first on 20 December 1996, but it could not proceed to hearing then because a preliminary objection was taken on the ground, inter alia, that the application was not initiated by Notice of Motion as required by Rule 45 of the Court B of Appeal Rules and Form A of the First Schedule thereto. I heard counsel for both sides and in my ruling dated 30 December 1996 I overruled the preliminary objection and granted an application by the applicant's counsel to amend the application in the title to include the words `Notice of Motion'. C

A reference from my ruling was preferred to the full Court on a number of grounds, one of the grounds not raised before me being that the application was invalid because it was not signed by or on behalf of the applicant. In its ruling dated 24 January 1997 the full Court dismissed the reference; and on the question of the application not being signed by or on behalf of the applicant the Court said: D

`... In our view it is such an irregularity that could in the interest of justice be regularised by the applicant being granted leave to sign the notice.' E

When the matter came before me this time ie on 6 February 1997 it could not proceed to hearing either. Mr C Tenga for Dr Ringo Tenga, appearing for the applicant, informed me that he has not been able to file a supplementary record F incorporating the two amendments granted by the full Court and by myself as shown above. He attributed such failure to some problems in his office connected with interruptions or failure of electric power. He therefore prayed for an adjournment during which to file a supplementary record incorporating the said amendments. G

Mr Muccadam, learned counsel appearing for the fourth respondent, opposed the application, but I now realize that through inadvertence I did not ask Mr Makungu, the learned State Attorney, if he wished to be heard on this point. Mr Muccadam H opposed the application

mainly on the grounds that the applicant had plenty of time to file a supplementary record but he did nothing and that the court orders granting the amendments of the record have now lapsed.

Admittedly when the full Court and myself granted the applicant's counsel leave to amend the application, no period of time was specified within which to effect the amendments. However, I

1997 TLR p55

KISANGA J

under Rule 47(2) of the Court of Appeal Rules the amended version of the A application had to be lodged in Court within 48 hours of granting the leave. That sub-rule says:

`(2) Where the Court gives leave for the amendment of any document whether on formal or informal application, the amendment shall be made or an amended version of the B document be lodged within such time as the Court when giving leave may specify and if no time is so specified then within forty-eight hours of the giving of leave and on failure to comply with the requirement of this sub-rule, the leave so given shall cease to have effect.' C

According to the sub-rule, the amended version of this application should have been lodged within forty-eight hours of the ruling of the Full Court on 24 January 1997 which granted leave to have the application signed by or on behalf of the D applicant, and which endorsed the part of my own ruling granting leave to amend the title of the application to include the words `Notice of Motion'. The applicant, however, did not comply with the requirement, with the result that the leave which was granted to effect the two amendments has now ceased to have effect ie it has lapsed. E

With such lapse, therefore, it becomes fairly apparent that the present application for an adjournment during which to file an amended application is grossly misconceived. Because the filing of an amended application is predicted upon the leave granted by the Court to effect the amendments in question. But once such F leave of the Court has ceased to have effect, as in this case, there can no longer be any basis for filing an amended version of the application as there is nothing to authorise such amendments. In other words it would be idle for me to grant an adjournment to the applicant to file an amended application when there is no authority to effect the amendments concerned in the first place. G

As stated earlier, Mr Tenga intimated that the failure to file the amended version of the application from 24 January 1997 to 6 February 1997 ie a total of fourteen days, was caused by problems in his office connected with interruptions or failure of electric power. It is not intended to go into the merits of this allegation, but if the learned counsel thought that he has sufficient reason for failing to file the amended H application within the prescribed time, it was open to him in terms of Rules 8 and 45 of the Court of Appeal Rules to make a formal application, duly supported by affidavit, for extension of time to file an amended application. This, however, he I

1997 TLR p56

KISANGA J

A did not do. Instead, as already demonstrated, he asked for adjournment to file an amended version of the application when the authority to effect the amendments in question had ceased to exist.

I am therefore satisfied that the application for adjournment is untenable and is accordingly refused with costs.

B The question that now follows is this: After refusing the application for adjournment, what happens to the application itself which is still before me? From the ruling of the full court and that of my own, it seems clear that the application is defective but that it could be cured by effecting the amendments for which leave was duly granted. In other words the application could be maintained and thus C proceed to hearing only if it is amended along the lines for which leave was duly granted. Without those amendments the Court could not proceed to hear it. Yet, for the whole period between 24 January 1997 to 6 February 1997 ie the day the D application came on for hearing, the applicant did not wish to avail himself of the opportunity afforded or granted to him by the Court to effect the appropriate amendments to the application. Nor did he apply for any extension of time during which to effect such amendments if at all he had sufficient reasons which prevented him from effecting those amendments within the prescribed time. Thus E the situation is one where the Court has invited the applicant to cure a defective application to make it possible for the application to proceed to hearing but the applicant ignores or declines to do so. To my mind it seems plain that the applicant has no intention of pursuing the application seriously. In the circumstances I am constrained to hold, as I do, that the only reasonable course open to me now is to strike out the application as being unmaintenable in law. It is ordered accordingly. F

The respondents will have their costs. However, since the application was in effect disposed of on the basis of the submissions made during the preliminary G objection, the costs recovered in respect of the preliminary objection shall suffice also to cover the application itself. That is to say, no separate costs may be recovered in respect of the application because no further submissions were made after the hearing of the preliminary objection. H

1997 TLR p57

FELIX TUMBO KISSIMA v TANZANIA TELE- COMMUNICATION CO LTD AND ANOTHER 1997 TLR 57 (CA) A

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Mfalila JA B

CIVIL APPLICATION 1 OF 1997
24 February 1997
Flynote

Civil Practice and Procedure - Appeals - Application for leave to file appeal out of time - When granted - Applicant having been let down by his advocate. C

-Headnote

The applicant applied for leave to file his appeal out of time. It appeared that the applicant had lodged the notice of appeal in time and had engaged an advocate to pursue his appeal. The advocate, apparently mixing politics and the legal D profession, had failed to pursue the appeal and in fact lied to his client.

Held:

The applicant had given sufficient reasons for delaying in lodging the appeal. E

Case Information

Application allowed

No cases referred to

Ngalo for the applicant F

[zJDz]Judgment

Mfalila JA:

This is an application for leave to file the appeal out of time. The record shows that the applicant lodged the notice of appeal in time and engaged an advocate in the person of Dr Lamwai to pursue his appeal. Mr Ngalo has told this Court that the G applicant then fully paid Dr Lamwai. But contrary to ethics, Dr Lamwai abandoned his client without doing anything about the appeal. Instead, he kept on doing nothing and in the end decided to tell lies to the applicant in his handwritten note of 18 May 1996. Since the applicant had already paid Dr Lamwai in full for his H services, it was not possible for him to find another lawyer in the shortest time possible.

I am satisfied that the delay in lodging this appeal was caused by Dr Lamwai's conduct of misleading the applicant that he was attending to the matter when in fact he was not. In fact he was telling lies to his client. His note on the applicant's letter to him bears this I

1997 TLR p58

MFALILA JA

A out. I am satisfied that this conduct is deplorable and tarnishes the image of the legal profession. If Dr Lamwai cannot be both politician and advocate, he should make up his mind to pursue one instead of conducting himself in this way. He has not even seen it fit to act the gentleman and refund the fees paid to him.

B For these reasons, I am satisfied that the applicant has given sufficient reasons for delaying in lodging the appeal. The application is accordingly allowed, the applicant is granted leave to lodge the appeal within thirty days from today 24 February 1997. The costs to be in the cause. C

1997 TLR p58

NICHOLAS NERE LEKULE v INDEPENDENT POWER (T) LTD AND ANOTHER 1997 TLR 58 (CA) D

Court	Court of Appeal of Tanzania - Dar es Salaam
Judge	Lubuva JA

CIVIL APPLICATION 70 OF 1996 E
24 February 1997
Flynote
F Civil Practice and Procedure - Appeals - Stay - Of execution of decree of High Court pending appeal - One of essential conditions for stay is that irreparable loss would result which could not be adequately compensated by damages.
-Headnote
G In a notice of motion the applicant applied for an order for the stay of execution of a decree of the High Court pending the determination of an intended appeal against the decision. The dispute arose from the first respondent's proposal to build a power station on property owned by the applicant and on which the applicant conducted farming operations.
Held: H
(i) One of the essential conditions for granting a stay of execution pending the determination of an intended appeal was the loss or injury that an applicant would be subjected to. The loss had to be of an irreparable nature which could not be adequately compensated by way of damages;
(ii) As money had been set aside for compensation for the applicant and I
1997 TLR p59
as the applicant did not have any permanent structure on the land A apart from perennial crops, this requirement had not been met.
Case Information
Application refused.
No cases referred to
Maira for the applicant. B
Dr Tenga and Salula for the respondents.
[zJDz]Judgment
Lubuva JA:
In a notice of motion under Rule 9(2)(b) of the Court's rules, the applicant is moving this Court for an order that the execution of the decree of the High Court (Kaji, J) in Miscellaneous Cause No 117 of 1996 be stayed pending the C determination of the intended appeal. The applicant is represented by Mr Maira, learned Counsel. Dr Tenga, learned Counsel appeared for the first respondent while Mr Salula, learned Senior State Attorney represented the second respondent, the honourable the Attorney-General. D
In support of the application, Nicholas Nere Lekule, the applicant has filed an affidavit. In that affidavit it is stated inter alia:

1. That on 12 September 1996, an application for an interim injunction was E filed in the High Court to restrain the respondent from entering into farm No 1331 Tegeta Sala-sala. The application was dismissed on 18 October 1996.

2. That if the stay order is not granted, the intended appeal would be rendered useless and of mere academic interest. F

At the hearing of this application, Mr Maira, learned Counsel for the applicant with characteristic vigour and industry briefly set out the historical background to the case that led to this application. He stated that the matter arose from High Court Miscellaneous Cause No 117 of 1996 and not Civil Case No 117 of 1996 which G was, through typing error, indicated in the notice of motion. According to Mr Maira in that Miscellaneous Cause the applicant had applied before the High Court for a temporary order of injunction to restrain the first respondent, the Independent Power (T) Ltd from entering into the land at Farm No 1331 Tegeta Sala-sala. This H order was sought Mr Maira stated, pending the determination of a suit which was then yet to be instituted. Incidentally from the bar the Court was informed that the suit is now instituted before the High Court as Civil Case No 15 of 1997, it is pending a hearing date to be fixed. A copy of the plaint in that case was, with the concur- I

A rence of both counsel, availed to me. On 18 October 1996, the High Court dismissed the application for the temporary injunction sought. The applicant was dissatisfied with that decision, and has thus filed the notice of appeal on 22 October 1996. He is now as stated earlier seeking an order of stay pending the determination of the intended appeal. B

In essence, Mr Maira's submission was that the applicant was seeking to have the decision/ruling of the High Court of 18 October 1996 stayed pending the determination of the intended appeal for two reasons. First, he stated, the applicant who owned land on Farm No 1331 Tegeta Sala-sala was carrying out C farming activities on that land which had been acquired by the Government on whose behalf of the second respondent was appearing. As stated in para 5 of the affidavit Mr Maira vehemently submitted that if the execution of the decision/ruling of the High Court of 18 October 1996 is not stayed, the intended appeal would be rendered useless and of a mere academic interest. Elaborating further on this D point he said the execution of the decision/ruling of the High Court would result in the farm plot being turned into a power station which would, in his view destroy the stratum of the intended appeal. Responding to para 6 and 7 of the affidavit in reply E by one James R Rugemalila, a director of first respondent company, Mr Maira countered that in the intended appeal the crux of the matter for challenge on appeal is not the money but the principles involved in the acquisition of the land. It was however not denied by Mr Maira that the first respondent had deposited money ie Shs 23.4 million for compensation in respect of the suit plot. He prayed F that in order to minimize the loss on the part of the applicant, the status quo ie the position before the parties went to the court, should be maintained until the pending appeal against Kaji, J's decision/ruling is determined.

G Dr Tenga, learned counsel for the first respondent argued three substantive grounds. Firstly, it was Dr Tenga's submission that the order or ruling of the High Court of 17 October 1996 is a

declaratory order which is not capable of execution. For that reason, Dr Tenga maintained, a stay order cannot be issued. At this juncture, it is to be observed that Mr Salula, learned Senior State Attorney who H appeared for the second respondent, the Attorney-General was in agreement with most of the points argued by Dr Tenga. He however added a few more points which I will deal with later. On this submission it is relevant to note that the application before the High Court was seeking an interim injunction to restrain the first respondent from entering Farm No 1331 Tegeta Sala-sala. That is, the I

application which was dismissed by Mr Justice Kaji on 18 October 1996. It is that A order in respect of which in this application as shown in the notice of motion and confirmed by Mr Maira, in his submission before me a stay order is sought. In my understanding, with the dismissal of the application in High Court Miscellaneous Cause No 117 of 1996 there was nothing, so to speak to be stayed. It was merely B a declaratory order that the application had been refused and so, the position on the ground as regards Farm No 1331 Tegeta Sala-sala remained as before, much the same as if nothing effectual had taken place legally. With an order which is incapable of execution, as I hold, that would be sufficient to dispose this application. But then there are other points of substance which were raised that need to be considered as well. C

Secondly, Dr Tenga argued that the stay order even if granted would not serve any useful purpose. This is because he stated, as of now when this application is being heard, the first respondent has gone quite a long way towards the D constructing of a power station. It was Dr Tenga's further submission that with the Government acquisition of the land on farm 1331 Tegeta Sala-sala and the same land having been allocated to the first respondent, there was no legal basis upon which the first respondent could be restrained from carrying out development on the suit land. If as found by the learned Trial Judge that at the time when the suit E plot was acquired, the applicant had no house on the land except for crops which have been uprooted and the land there is under construction, I agree with Dr Tenga, that the order sought would not serve any useful purpose. That is, the F matter having been overtaken by events, the stay order sought would not achieve the purpose it was intended ie maintaining a status quo. Thirdly, it was also the submission of Dr Tenga, learned counsel that there was no ground for the grant of a stay order. The reason he advanced was that in the circumstances of the case G the applicant is not subjected to an irreparable loss which would not adequately be compensated by an award of damages. He went on in his submission that the first respondent has deposited Shs 2.3 million with the government for compensation in respect of the suit plot at the farm. In that case, Dr Tenga H submitted, as seen from the plaint filed in the substantive suit -- Civil Case No 15 of 1997, the issue being one of compensation, it is a matter which does not warrant the granting of a stay as the applicant could equally be compensated.

On the question whether or not to grant a stay, it is common ground that one of the essential conditions for granting a stay of I

LUBUVA JA

A execution pending the determination of an intended appeal is the loss or injury to which an applicant is subjected. It should not be any ordinary loss, it must be an irreparable loss which cannot adequately be compensated by way of damages. In the instant case, as found by the trial judge, the issue is a narrow one namely that B of compensation in which case, the damage or loss that the applicant has suffered is capable of being qualified and paid for by way of damages. At the hearing of this application, Mr Maira, learned counsel accepted as truthful that C money in an amount of Shs 23.4 million has been deposited by the first respondent with the government for purposes of effecting compensation to claims such as the applicants. As a matter of fact, it was brought to my attention that except for the applicant and one other person, the rest of the occupiers of the land in the area under dispute have moved out of the area after compromising on compensation. Additionally, it is also an undisputed fact that the applicant did not D have any permanent structure on the land apart from perennial crops. In that situation, I am of the settled view that the applicant does not qualify for the grant of a stay. The loss involved is not irreparable, it is capable of being adequately compensated by an award of damages.

E In view of the position I have taken of the matter, it is not necessary to go into the details of the other points which were raised by Mr Salula, learned Senior State Attorney. In passing perhaps I should touch on one thing. He had taken issue with the affidavit in support of the notice of motion. That it was defective in terms of Ord F 19 Rule 3 of the Civil Procedure Code. Needless to go into the details of the matter especially on whether the affidavit was defective or otherwise. Suffice it at this stage to observe that it is common knowledge that the Civil Procedure Code is applicable before the High Court and the courts below. In this Court, the procedure is governed by the Court's Rules, 1979.

For the foregoing reasons, the application is dismissed with costs. G

1997 TLR p63

TANZANIA COTTON MARKETING BOARD v COGECOT COTTON CO SA 1997 TLR 63 (CA) A

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Lubuva J B

CIVIL APPLICATION 52 OF 1996

24 February 1997

Flynote

Civil Practice and Procedure - Appeals - Stay - Of execution pending appeal against decision of High Court - Applicant required to give details and particulars of loss it would C suffer if stay not granted.

-Headnote

The applicant applied for a stay of execution of a decision of the High Court which had granted an application for the formal filing of an arbitration award against the applicant. The applicant contended that if the stay order were not granted the D outcome of the intended appeal would be rendered nugatory if it went in the applicant's favour. It was contended further that if the stay were not granted its business would suffer such great and irreparable loss that it would be brought to a standstill.

Held: E

(i) That the applicant had not gone beyond mere assertion that it would suffer great loss and that its business would be brought to a standstill. Unless details and particulars of the loss were specified there was no basis upon which the Court could satisfy itself that such loss would be incurred; F

(ii) The applicant had furthermore failed to indicate, beyond the vague and generalised assertion of substantial loss, that the loss would be irreparable. Any loss which the applicant was likely to suffer could be adequately compensated for by an award of damages;

(iii) The granting of a stay was a matter of discretion which was be G exercised on a common sense and balance of advantage basis. In the present case there were no good or sufficient reasons for the grant of a stay even on the basis of common sense and balance of convenience approach.

Case Information

Application dismissed.

Cases referred to: H

1. Salim Salim Bakhressa v Ally Ngume Civil Application No 56 of 1995 (unreported)
2. Bansidhar v Pribhu Dayal [1954] AIR 41 Raj
3. Yaledi Swai and Anor v Lilian Mavo and Anor Civil Applicaton No 18 of 1994 (unreported) I

A 4. Joseph K Mlay v Ahmed Mohamed Civil Application No 39 of 1995 (unreported)
5. Simonite v Sheffield County Council Times Law Reports, 12 January 1993
6. Winchester Cigarette Machinery Ltd v Payne and Anor (2) Times Law Reports, 15 December 1993 B

Mselem for the applicant.

Mkono, Dr Kapinga and Ms Kasonda for the respondent.

Judgment

Lubuva JA: C

This is an application for a stay of execution. It arises from the decision of 16 August 1996 by the High Court (Kaji J) in Miscellaneous Civil Cause No 34 of 1996. In a notice of motion filed under Rule 9(2)(b) of the Court's Rules, 1979 the D applicant is applying for an order that the execution of this decision be stayed pending the determination of an intended appeal the notice of which was lodged on 22 August 1996. The application is supported by an affidavit deponed by

one Ahmad Salum Kilingo, the Legal Secretary to the Tanzania Cotton Marketing Board, the applicant. The undisputed historical background to the case is short and may briefly be stated as follows: During the period 1993 and 1994 the E applicant had entered into a sale agreement for the purchase of raw cotton exported by the applicant. The respondent company was the buyer. A dispute between the applicant (seller) and the respondent arose which was referred to the Liverpool Cotton Association Ltd for arbitration. An award in favour of the F respondent was confirmed by the Technical Appeal Committee of the Arbitrators -- Liverpool Cotton Association Ltd. On request by the respondent, the Arbitrators filed the award before the High Court. Hence the institution of Miscellaneous Civil Cause No 34 of 1996. The applicant raised objection against the filing of the award G before the High Court on the ground that improper procedure in filing the award was invoked.

Upon careful and detailed analysis of the submission by Mr Mkoro, learned H Counsel for the respondent in this application who was then the applicant and Mr Mselem, learned Counsel for the applicant in this matter who was then the respondent, the learned judge overruled the objection against the applicant and granted the application for the formal filing of the award by the arbitrators. The applicant is dissatisfied with that decision and so the notice of appeal has been filed. It is the applicant's prayer that I

the execution of the decision/decree be stayed pending the hearing of the intended A appeal.

In the affidavit in support of this application, Ahmed Salum Kilingo on behalf of the applicant inter alia, advances the following reasons for seeking a stay order: B

1. That the ruling of the High Court raises very important points of law which call for the determination of the Court of Appeal
2. That if the award/decree is executed the applicant will suffer great injuries as the decretal amount will be very high thereby bringing the business of the applicant of buying and exporting cotton to a standstill. C

At the hearing of this application, Mr Mselem, learned Counsel submitted that if the stay order is not granted, the outcome of the intended appeal would be rendered nugatory in the event the appeal now pending succeeds in favour of the applicant. He further argued that as the decretal amount is so great, the applicant's business D would suffer such great and irreparable loss that it would be brought to a stand still. So, he prayed for the granting of the stay order.

For the respondent, Mr Mkono, learned Counsel assisted by Dr Kapinga and E Pauline Kasonda, learned Counsel appeared before me in this application. In the first place, it was submitted by Dr Kapinga that the ruling of the High Court dated 16 August 1996 was a declaratory order which was not capable of execution. For that reason, Dr Kapinga argued, there was no basis upon which a stay order could be issued. In support of this argument, he referred to a decision of mine Salim F Said Bakhresa v Ally a Ngume (1). In that case, a stay order was sought in respect of a High Court order dismissing an application to set aside an ex-parte judgment. There, it was held that the High Court order of dismissal was merely G declaratory, incapable of execution in respect of which no stay order could be issued. The reason was that,

with the dismissal order by the High Court, the status quo reverted to was the decision of the District Court which was capable of execution in respect of which a stay order could be issued. In the instant case, the H situation is different because, with the filing of the award in court in terms of s 16(1) the Arbitration Ordinance, Chapter 15 of the Laws, such an award is capable of being enforced as if it were a decree of the court. With respect, Dr Kapinga's submission that the ruling of the High Court was declaratory is rejected. I

1997 TLR p66

LUBUVA JA

A Countering the argument that the applicant would suffer irreparable loss if a stay order is not granted, Dr Kapinga forcefully submitted that this prayer was without merit. It was Dr Kapinga's view that a mere assertion on the part of the applicant that if the amount awarded is to be executed, the applicant will suffer such great loss that the business of the applicant would be brought to a stand still B is vague. He further stated that the affidavit deposed to by Mr Kilingo is too general, it does not give any particulars of the loss that the applicant would suffer if no stay order is issued. I have been referred to a number of decided cases in India, England and the decisions of this court on this point. For instance, he referred to the Indian case of Bansidhar v Pribhu Dayal (2) where it was stated: C

`It is not enough merely to repeat the words of the Code and state that substantial loss will result; the kind of loss must be specified, details must be given, and the conscience of the court must be satisfied that such loss will really ensue.' D

On the basis of this principle, Dr Kapinga submitted that this ground was without foundation because there was nothing to convince the Court that such loss would really ensure on the part of the applicant if the award is executed. E

At the outset it must be stated quite clearly that this being an application for stay of execution filed under Rule 9(2)(b) of the Court's rules, it is discretionary. It's grant or otherwise would depend on the individual circumstances of the case at hand. In F this case, the decision turns around the issue whether the applicant would suffer not only substantial but irreparable loss which cannot be atoned by way of damages. This aspect was, as shown above, sufficiently canvassed by the G learned counsel for both parties. On this, I am respectfully in agreement with Dr Kapinga, learned counsel that the applicant has not gone beyond mere assertion that he would suffer great loss and that his business would be brought to a stand still if the award is executed. In my considered view, this is quite clearly unsatisfactory. As it was held in the case of Bansidhar (supra) unless details and H particulars of loss are specified there is no basis upon which the Court can satisfy itself that such a loss would really be incurred by the applicant. What is more, in the instant case, the situation seems to me even worse. From the affidavit sworn by Kilingo, in essence, it is stated that if the award is executed, the business of the applicant would be brought to a stand still. As a result, the applicant's financial position would be incapa- I

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LUBUVA JA

citated, so it was asserted by Mr Mselem, learned Counsel. If that is the A apprehension as expressed by Mr Mselem, learned Counsel for the applicant then that leaves open the possibility that the applicant's financial position is such that the decretal amount awarded could be paid for. But what seems to worry the applicant is the resulting hardship in future business dealings. Such would in my view, be the normal hazards of any judgment-debtor. This was further B underscored in the case of Bansidhar cited supra. There, it was further observed:

`The words ``substantial'' cannot mean the ordinary loss to which every judgment-debtor is C necessarily subjected when he loses his case and is deprived of his property in consequence. That is an element which must occur in every case and since the Code expressly prohibits stay of execution as an ordinary rule it is clear the words ``substantial loss'' must mean something in addition to and different from that.' D

In this case from the deposition in the affidavit and the submission by the applicant's counsel at the hearing of this application, I am not convinced that the applicant has shown that in fact he would be subjected to substantial loss if stay order is not granted. The matter has not, with respect, been taken beyond the E stage of vague assertion that great loss would be incurred and that business would be brought to a stand still if stay order is not issued. That is not enough.

Then there is the question of whether the loss is irreparable. I have already held F that in this case, the applicant has not advanced the case beyond the vague and generalised assertion of substantial loss in the event a stay order is not granted. That is, granted that there was such a loss to be incurred by the applicant, would such a loss be adequately compensated by an award of damages? In a number of G cases, this Court has held that stay order is not normally granted unless the Court is satisfied that the applicant has suffered an irreparable loss that cannot be atoned by way of damages. See for instance: Yaledi Swai & Another v Lilian Maro and Another (3);Said Salim Bakressa v Ally A Ngume (1); Joseph K Mlay v Ahmed Mohamed (4). H

From the principle stated in these cases, it seems clear to me that having regard to the circumstances of this case the applicant can hardly be said to have or is likely to suffer substantial and irreparable loss if execution of the award is not stayed. Such loss or da- I

A mage is, in my opinion capable of being adequately compensated by way of damages.

Another factor for consideration in this matter is the question whether the applicant has shown a prima facie case with a probability of a success in the appeal pending. It is however to be noted that at this stage it is rather premature to make any meaningful assessment of the chances of success of the appeal pending B because arguments from both sides have not been heard. At any rate it is to be observed as well that even elsewhere in countries with similar jurisdiction, the current trend seems to indicate a move away from this factor in matters of granting a stay. This can be seen from England in the case of Simonite v Sheffield C County Council (5) where it was stated:

`... and that there were strong grounds for an appeal was no reason for granting a stay, for no one ought to appeal without strong grounds for doing so'. (emphasis supplied) D

And so, with this restatement of the applicable principle my view is further reinforced that I am not persuaded either by this factor that this application warrants the issuance of a stay. E

Finally, I will look into the matter in the light of the third element which is also taken into account in considering applications for a stay. That is, when the court is in doubt having taken the various factors into account, the matter is decided on the balance of convenience. As stated before, the granting of a stay is a matter of F discretion and this is clearly indicated under the provisions of Rule 9(2)(b) of the Courts Rules, 1979. It is common knowledge that principles involving the exercise of a discretion crystallize and take root from established practice. For instance, in England, in situations of this kind, the current trend and practice of the court has G moved on to involve common sense and a balance of advantage. In the case of Wincester Cigarette Machinery Ltd v Payne and Another (6) the court inter alia stated:

H `In recent cases it has been said that the practice of the court had moved on from the principle that the only ground for a stay was the reasonable probability that damages and costs paid would not be repaid if the appeal succeeded. These cases held that the approach of the court now was a matter of common sense and a balance of advantage ...

But in holding any such balance of advantage, full and proper weight had to be given by the court to the starting principle that there I

had to be a good reason for depriving a plaintiff from obtaining the fruits of a judgment.' (emphasis supplied). A

I have closely examined this principle in the light of the circumstances of this case. With respect, I am unable to go along with Mr Mselem, learned Counsel that there are good or sufficient reasons for the grant of a stay even on the basis of common sense and balance of convenience approach. B

Consequently, the application is dismissed. For this application it is ordered that each party to pay his own costs. C

ATTORNEY GENERAL v MAALIM KADAU AND 16 OTHERS 1997 TLR 69 (CA) D

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Nyalali CJ, Mfalila JJA and Lubuva JJA E

CIVIL APPLICATION 51 OF 1996
26 February 1997
(Application for revision from the decision at the High Court of Tanzania, Tabora, Mchome J) F
Flynote

Civil Practice and Procedure - Appeals - Who may appeal - Rule 76 - Reference in Rule 76 to `any person' meaning any party to the proceedings. G

-Headnote

The Attorney-General applied for an order that a decision of the High Court be revised in order to correct illegalities and improprieties contained therein. The proceedings arose out of the institution of proceedings by Kahama Mining H Corporation Ltd (KMC) against the respondents who sought an injunction against the respondents restraining them from interfering with mining operations and also sought an eviction order against the respondents. Whilst those proceedings were still pending the respondents applied for the Attorney-General to be joined as a co-defendant in that suit as they alleged that their defence I

1997 TLR p70

A raised basic constitutional rights issues. An order was granted and it was ordered that the matter be heard by the High Court composed of three judges.

Prior to the Attorney-General being joined as a party to the original case, the respondents applied as a mater of urgency for a temporary injunction to restrain KMC from evicting them before the main suit was finally determined. The application was heard and determined the same afternoon and a temporary injunction was issued against KMC and the Attorney-General. B

It was contended on behalf of the respondents that as the Attorney-General had a right of appeal in the matter it was improper for him to bring the matter by way of revision. It was contended that even though he was not a party to the original proceedings, Rule 76 permitted any person to bring an appeal. C

Held:

(i) The words `any person' in Rule 76 referred to any of the parties involved in the original suit and not any other person; D

(ii) As the court order referring the matter to the High Court expressly provided that the Court be composed of three judges, the court had no authority to hear the application for the temporary injunction; the Court had erred further in granting the order without notice to the Attorney-General;

E (iii) The Court had also erred in holding that it had authority under s 95 of the Civil Procedure Code 1966: it was trite law that the inherent powers of the Court under this section of the Code were only invoked in cases where the Court had authority or jurisdictionto hear the matter - in the present matter there was no such authority or jurisdiction because of the existence of the unvacated order.

Case Information

F Order accordingly.

Case referred to:

1. Transport Equipment Ltd v D P Valambhia [1993] TLR 91 (CA)

G Mrs Macha for the applicant.

Maira for the respondents.

[zJDz]Judgment

Lubuva JA:

H In this matter the Attorney-General is seeking to move the Court for an order that the decision of the High Court in Civil Case No 12 of 1995 dated 2 August 1996 be revised in order to correct illegalities and improprieties contained therein. A notice of motion was filed in which the ground for the application was stated:

`There is no procedure for revision which is provided for under the rules and that there is an impeding order of the High Court that has I

been improperly issued against the Attorney-General, who cannot appeal against it because A he is not a party to Civil Case No 12 of 1995'.

The application is supported by an affidavit deponed to by Lawrence Kaduri, learned Principal State Attorney in charge of the Attorney-General's Office Tabora Zone. B

In the affidavit the historical background of the sequence of events giving rise to this matter is set out. At this juncture it is desirable to outline the facts in brief. It is common ground that in 1995 the company by the name of Kahama Mining Corporation limited was licenced by the government of Tanzania to carry out C mining activities in Kahama District. This company instituted High Court Civil Case No 12 of 1995 at Tabora against the respondents. That is, the company was the plaintiff and the respondents in this application were the defendant in the suit. In that case the plaintiff Kahama Mining Corporation Limited had applied for a D permanent injunction to restrain the respondents from interfering with the mining operations in the area. The plaintiff company had also sought an eviction order against the respondents who, in their written statement of defence counter claimed for compensation if they were to move out of the area where they claimed to have been living for years carrying on small scale mining activities. E

While the Civil Case No 12 of 1995 was still pending, the respondents had applied for the Attorney-General to be joined as co-defendant in that suit. This was so because it was thought that the respondents' defence raised basic constitutional rights issues. At that stage, it appears from the record the court having accepted F that the case involved basic constitutional rights made the following order:

`I therefore declare that this suit involves questions on constitutional basic rights and duties and has to be dealt with under the provision of the Basic Rights and Duties Enforcement Act, G 1994. And I refer this case to such court and, according to section 10 of the Act No 33 of 1994 this matter shall be heard by the High Court composed of three High Court judges.' H

On Friday afternoon, 2 August 1996, the respondents filed as a matter of urgency an application seeking a temporary injunction to restrain the Kahama Mining Company and the government from evicting them (respondents) from the area before the main suit ie High Court Civil Case No 12 of 1995 is finally determined. In their I

A application, the respondents claimed that the police had been stationed at the respondents' village ready to evict them. The Attorney-General who was yet to be joined as a party to High Court civil Case No 12 of 1995 on behalf of the government was not served with the notice of hearing of the application for B temporary injunction. So, with unprecedented speed and urgency the application was heard and determined the same afternoon. The application was granted with the result that a temporary injunction was issued against Kahama Mining Corporation Limited, the Attorney-General and their agents, servants, workers or representatives restraining them from evicting the respondents from their villages until the final determination of High Court Civil Case No 12 of 1995. C

The Attorney-General was aggrieved by the order issued by the High Court (Mchome, J). Though he was not a party to Civil Case No 12 of 1995, the order was issued against him. Hence this application to this Court. D

At the hearing of this application, Mr Maira learned counsel holding brief for Mr Kwikima on behalf of the respondents raised a preliminary objection. He argued that as the Attorney-General had a right of appeal in this matter, it was not proper for him to bring up the matter by way of revision. It was his submission that in E terms of s 4 of the Appellate Jurisdiction Act, 1979 as amended by Act No 17 of 1993 which involved the Court with revisional jurisdiction, a party who has the right of appeal cannot come to this Court by way of revision. In this case, he said, the Attorney-General should have lodged an appeal. Prompted by the Court as to how F this could be done since the Attorney-General was not a party in the original case, Mr Maira firmly maintained that Rule 76 of the Court's Rules, 1979 allows any person who desires to appeal to the court to do so. In his view, any person even if he is not a party to the original case, if in one way or the other he is affected he can lodge an appeal. He insisted that words should be given their natural meaning as they appear in the rules unless such interpretation results into G absurdity. He referred us to the decision of this Court in Transport Equipment Ltd v DP Valambhia (1).

H Responding to the preliminary objection, Mrs Macha, learned Senior State Attorney for the Attorney-General ardently submitted that the Attorney-General not being a party to Civil Case No 12 of 1995 could not lodge an appeal. She said it would lead to an absurdity if the law allowed any person not involved in the original case to lodge an appeal. In that way, she stressed, a flood gate of appeals from the world at large would be opened. I

1997 TLR p73

LUBUVA JA

At the end of the submissions by the learned counsel for both the applicant and the A respondents or the preliminary objection, we reserved our ruling on the issue until at the end of hearing arguments on the whole matter before us. That is, depending on the direction our ruling would take on the objection, such would be embodied in the body of our decision in the application. We propose to deal first with the preliminary objection in this ruling. B

With respect, we agree with Mrs Macha's submission on this point. While it is true that Rule 76 of the Court's Rules, 1979 provides for any person to appeal to this Court, it defies logic and common sense that the provision was meant to allow any C person at large even if he is not a

party to the original case to take up an appeal to this Court as urged by Mr Maira. In our considered opinion, the words `any person' should be interpreted to mean any one of those involved in the original case and not otherwise. An interpretation along the lines canvassed by Mr Maira, D learned counsel would lead to an absurdity which was not intended in enacting the rules. It is our view that in Transport Equipment Ltd v DP Valambhia (supra) to which we were referred is inapplicable to the instant case. In that case, unlike the instant case, the parties involved in the reference were the same parties who were involved in Civil Applications Nos 13 and 29 of 1991 before a single Judge of this E Court. So, the question of involving a person who was not a party to the original case did not arise. In the result, the preliminary objection is overruled.

We will next deal with the merits of the case. In the first place, the issue is whether F the learned judge had authority to deal with the application. Mrs Macha, learned Senior State Attorney categorically submitted that the learned judge had no such authority. She pointed out that as already indicated, at some stage when an application was made to join the Attorney-General as a party to the suit in High Court Civil Case No 12 of 1995, there was an express order of the court to the G effect that the matter including applications, would be heard by three judges of the High Court. Unless this order as vacated, Mrs Macha countered, the learned judge had no authority to deal with the case alone as he did. On the other hand, Mr H Maira, learned counsel boldly argued that the learned judge cannot be faulted because the granting of reliefs by way of a temporary injunction is a matter of discretion which, he said was judicially exercised. As the police were already at the site in the respondents' villages, Mr Maira went on, speed was necessary in order to prevent a miscarriage of justice, namely, the eviction of I

A the respondents. Finally, it was Mr Maira's submission that the circumstances of the case were such as to justify the application of the court's inherent powers under s 95 of the Civil Procedure Code.

With the court order extracted above still on record unvacated, it is clear to us that the learned judge had divested himself of the authority to deal with the case singly. B According to the order, because the suit involved constitutional basic rights, the case was to be heard by a panel of three judges of the High Court. This is in accordance with the provisions of s 10 of Act 33 of 1994. Apparently, aware of this order, the learned judge advances two reasons why he still dealt with the matter. First, as he described it, the affair cries haste and speed must answer it. That is, C as the police were already stationed at the villages of the respondents, anything could happen if the application was not heard that afternoon ie, eviction. Secondly, that the panel of three judges to hear the application could not be convened at that time because his other two colleagues were absent from the station and he D himself was due to leave the following day. With due respect to Mr Maira, learned counsel we do not accept that the learned judge cannot be faulted for what he did in this matter because he exercised the discretion judicially in the matter which called for speedy action in order to prevent a miscarriage of justice. It is E elementary that so long as the court order divesting the court of the authority to deal with the

case was still in force any further dealing with the case outside the terms of the order was incompetent. It cannot be justified on grounds of F expediency or an apprehension of a miscarriage of justice. So long as the learned judge had the authority to deal with the case sitting as a single judge, it is inconceivable that the learned judge still dealt with the case fully aware of the existence of the court order. This is evident from the reasons advanced. In the circumstances, we are convinced that the learned judge was clearly wrong in assuming authority to deal with the application when the court order was still in force. G

It defeats us why the learned judge overlooked to invoke the otherwise day to day common procedure in situations of this kind that is familiar to judicial officers. Perhaps we venture to think, it was because of the peculiar and unusual manner in which the matter was handled. If the situation warranted to be dealt with so H urgently, the learned judge could either seek assistance from the Principal Judge in Dar es Salaam or refer the parties to Dar es Salaam where the matter could be attended to by a panel of three judges. This, he did not do but instead, he proceeded to deal with the matter in I

complete disregard of the order. This was as pointed out patently wrong on the A part of the learned Trial Judge.

There is another ground of complaint in this application raised by the Attorney-General. That the matter was heard ex-parte and that he was not served with the notice of hearing of the application. According to Mrs Macha, para 3 of the affidavit in support of the application which was not countered, Mr Kaduri, the B Principal State Attorney in charge of the Attorney-General's Office, Tabora Zone deponed that he was not served with the notice of hearing the application. He was however served with a copy of the ruling of the application by Hon Mr Justice Mchome personally on Saturday evening, the day after the hearing of the application. She submitted that having regard to the fact that the C Attorney-General's Office in Tabora is within easy reach from the court building in fairness to both parties, the Attorney-General should have been served with the notice of hearing. On this, Mr Maira's submission was that the learned judge properly invoked the court's inherent powers under s 95 of the Civil Procedure Code, 1966. D

From the record, it is shown that the application was filed late in the afternoon, Friday 2 August 1996. Because of the circumstances of the case the learned judge decided to hear the matter ex-parte. And what are the circumstances. As shown on record, it was feared that the applicants, the villagers, would be evicted E any time by the police who were already stationed at the applicant's villages. The evidence in support of this apprehension was based on the reports from the news papers and the radio broadcast. We will advert to this aspect later. At this stage, F we pose to ask ourselves whether the learned judge's decision to proceed to hear the application ex-parte without notifying the Attorney-General was justified. As shown the urgency of the matter was that there was an apprehension that the government by use of the police was threatening to evict the respondents from their villages. In that case, the government represented by the Attorney-General G was a necessary party to be heard in the application for a temporary

injunction the subject matter of the application. Granted that the matter was of extreme urgency, still it is our view that the Attorney-General's Office in Tabora could have been H served with the notice of hearing without causing delay. This is so, having regard to the fact that the High Court building in Tabora is within easy reach from the Attorney-General's Office there. The notice could be effected physically by court process server or by telephone, failure to which, the matter could well be heard the next day, when, as shown in the affidavit the learned judge I

A personally handed over a copy of the ruling to the Principal State Attorney. Unusual though it was, if the learned judge obliged to take a copy of the ruling in person on Saturday evening to the Principal State Attorney, we see no reason why he did not make a similar effort to notify the Principal State Attorney by telephone B or by physical contact as he did the next day when he delivered a copy of the ruling. This would accord with the principles of natural justice which the learned judge commendably and underscores in the course of his ruling when he states:

C `Natural justice requires that even a poor peasant at least be consulted before a decision affecting his life is made. In court he deserves at least to be heard.'

From this, it appears to us that this cardinal principle of justice was, with respect to the learned judge, applied in the reverse in so far as the Attorney-General was D concerned. This, we are convinced, was not fair and was done in such circumstances that raise doubts and suspicion as to the reasons behind it.

In the ruling, the learned judge sets quite correctly the legal position regarding the issuances of a temporary injunction against the government. He states that the E application could not be granted under Order 37 of the Civil Procedure Code 1966 because the government was not a party yet to Civil Case No 12 of 1995. The learned judge also considered the Government Proceedings Act 1967 as F amended by Act No 30 of 1994 which provides for a period of three months before the government can be made a party to proceedings. So, he took the view that irreparable damage would be caused to the respondents (then applicants) if the court were to wait for three months before issuing the injunction order. The application was thus granted by invoking the inherent powers of the court under s 95 of the Civil Procedure Code, 1966. We must at once point out that this was a G misapplication of this section. The reason is not far to seek. It is trite knowledge that the inherent powers of the court provided under this section of the Civil Procedure Code are invoked in situations where the court has authority or H jurisdiction to deal with the matter and there is no specific provision of the law in place. Where as in this case the court has no jurisdiction or authority and there are express provisions of the law as was the case here, which previsions were elaborately set out by the learned judge, it was an error on the part of the learned judge to invoke such powers. Mr Maira's submission on this point is, with respect, rejected. I

As stated before, the learned judge treated this matter with extreme urgency and A haste. It was filed late on Friday afternoon, 2 August 1996 and was finally determined the same day. The learned judge did so because the respondents in this application who were then the applicants were in danger of being evicted by use of the police. In support of this view, the learned judge stated: B

`There is probable truth in this as this morning I was reading two news papers, Mtanzania and the Guardian, confirming that the government has decided to evict the applicant from the area. Radio Tanzania, which I also listen to has been broadcasting this over the last two days or so.' C

It hardly needs to be overemphasized that it is highly improper on the part of the court to rely on or to take into account radio and newspaper reports as the basis of deciding the case. Time and again this Court has expressed the correct position in D law for the courts in administering justice. The Courts should base their decisions on nothing else other than the evidence adduced in court and the applicable law in the circumstances of the case. In the instant case it is inexplicable why the learned judge fell into the serious error of taking into account press and radio reports as the basis of deciding the case. This was, in our view, highly improper. We urge the courts to refrain from such practices in future. E

Consequently, in the circumstances of the case, the application succeeds and we agree to assume our revisional jurisdiction and exercising such revisional powers we set aside the order made by the High court for the reasons set out in this ruling. The matter is left open for the parties to pursue in terms of the law if they so wish. F It is so ordered.

Finally, though not part of the decision in this matter, we feel it appropriate to make G the following observation. From the proceedings in this case it is apparent that the errors and the unsatisfactory features are, in our considered opinion, glaringly of such a nature that with some diligence and a lesser sense of overzealousness, recurrence could be avoided. It is earnestly trusted that the relevant authorities in the judiciary would take the necessary appropriate steps in drawing the attention of H the relevant judicial officers to be extra careful in order to avoid a recurrence of such errors. This is particularly so because if the unfortunate impression is created that the judicial officers themselves do not respect the law, it would be difficult for other people, including the government, to respect the law. I

1997 TLR p78

SHINYANGA REGIONAL TRADING CO LTD AND ANOTHER v NATIONAL BANK OF COMMERCE 1997 TLR 78 (CA) A

Court Court of Appeal of Tanzania - Mwanza
Judge Mnzavas JJA, Mfalila JJA and Lubuva JJA B

CIVIL APPEAL 21 OF 1996

28 February 1997

Flynote

C Company law - Debentures - Registration of - Effect of non-registration - In terms of ss 79 and 80 of the Companies Ordinance Cap 212 if charge not registered within 42 days it becomes void and the loan so secured immediately payable.

Company law - Debentures - Nature of - No such thing in law as a debenture contract or agreement. D

Land law - Sale of land - Under debenture - Debenture merely providing for appointment of receiver in event of default - Company had no direct power of sale in such event.

-Headnote

E The appellant appealed against a judgment of the High Court which had upheld a claim by the respondent against it relating to the sale of a godown. The godown was among the properties listed in the debenture which had been issued by the appellant to secure an overdraft facility granted by the respondent to the appellant. When the appellant failed to pay in time the respondent sold the godown by public auction. Subsequent to that sale the appellant sold the godown to the second appellant who alleged that it was the bona fide purchaser for value of the property. F

The judge at the trial held that the sale and transfer of the godown to the second appellant was illegal because it was contrary to the terms of the debenture and held that the second defendant was not a bona fide purchaser as the sale had been tainted by fraud. On appeal:

Held: G

(i) That the trial court had erred in describing the instrument as a debenture contract or agreement: there was no such thing as a debenture contract or agreement in law. A debenture was simply a document issued by a company as evidence of its indebtedness which was normally secured by a charge over its property and could only be made and issued by one side, namely the borrowing company; H

(ii) Sections 79 and 80 of the Companies Ordinance Cap 212 were quite clear as to the registration of charges and the consequences of non-registration, namely that if the charge was not registered within 42 days it became void and the loan so secured became immediately payable. In the present case the debenture had not been so registered and it was accordingly void; I

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(iii) Even if the debenture had been properly registered and valid at the A time of the sale of the godown by the respondent it would make no difference on the validity of the sale by the respondent as under the debenture the respondent had no direct power of sale.

Case Information

Appeal allowed.

Cases referred to: B

1. Long v Abercorris Slate & Slab Co [1887] 37 ChD 260
2. Eastern Distributors Ltd v Goldring [1957] 2 QB 600
3. Commonwealth Trust v Aktoy [1926] AC 72

4. Mtumwa Rashid v Abdallah Idd and Anor Civil Appeal No 22 at 1993 C

Rweyemamu, for the appellants.

Prof. Fimbo, for the respondent.

[zJDz]Judgment

Mfalila JA:

This appeal is against the judgment and decree of the High Court of Tanzania at D Tabora in which judgment was entered in favour of the present respondent, the National Bank of Commerce. In the High Court, the National Bank of Commerce was the plaintiff, Shinyanga Regional Trading Company Ltd was the first defendant and Nyanza Bottling Company Ltd was the second defendant. In this appeal, the E National Bank of Commerce will be referred to as the respondent, Shinyanga Regional Trading Company Ltd as the appellant and Nyanza Bottling Company Ltd, which is not a party in this appeal will be referred to as the second defendant. The respondent's claim in the High Court was for a declaration that the sale of the F godown on Plot No 308 Block `B' in Shinyanga township, executed between the appellant and the second defendant and its subsequent transfer was illegal. The respondent alleged in its plaint that the said godown was among the properties listed in the debenture which was issued by the appellant to secure an overdraft facility amounting to Shs 50,000,000/= which it made available to the appellant. But G according to the respondent, when the appellant failed to repay the loan within the stipulated time, it decided to sell the properties listed in the debenture after giving due notice. Among these properties was the said godown. The sale of the H properties including the godown was conducted by public auction. Following this auction, the respondent averred, the appellant filed a suit in the High Court, Civil Case No 18 of 1994 seeking among other reliefs, a declaration that the sale of the godown is null and void. However, according to the respondent, before this case, I

A namely Civil Case No 18 of 1994 was determined, the appellant sold and transferred the godown to the second defendant, and according to the respondent, this sale and transfer of the godown by the appellant to the second defendant was illegal because:

B (a) By that time it had already sold the said godown at a public auction and the money so realised was deposited in the appellant's account.

(b) The said sale and transfer between the appellant and the second defendant was made without notice to it in breach of the mandatory provisions in the debenture. C

(c) The said sale and transfer was effected before finalisation of Civil Case No 18 of 1994.

(d) The said sale and transfer was effected in complete disregard of the caveat filed by the buyer of the property at the public auction which it organised. D

In its written statement of defence, the appellant denied that its sale of the godown to the second defendant was unlawful or illegal and that it did not fail to repay the loan as alleged and that in any case no due and proper notice was given by the respondent before the sale of the

godown. The appellant further averred that on 17 E September 1994 it repaid the entire loan to the respondent by depositing the sum of Shs 63,542,025/25 in its account with the respondent as full settlement of the outstanding loan before the expiry of the agreed period on 30 September 1994 F and that the second defendant's credit note for Shs 63,542,025/25 is evidence of this transaction. That following the deposit of this amount in its account with the respondent, it informed the respondent on 22 September 1994 to treat this credit as settlement of the loan provided to them by the respondent. G

On its part, the second defendant denied that the sale of the godown by the appellant was illegal because it was a bona fide purchaser for value without notice land that therefore it acquired a good title. H

At the commencement of the trial, three issues were framed as follows:

1. Whether the sale and transfer of the suit premises by the first defendant to the second defendant was illegal.

2. If the sale was illegal, whether the second defendant was a bona fide purchaser for value. I

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MFALILA JA

3. Whether in the circumstances, the plaintiff was entitled to sell the suit A premises and whether he had title to pass to the purchaser.

The respondent called only one witness in support of its case, its legal officer Mr Makenena Ngero. He told the trial court that they were requesting the court to B nullify the sale of the godown by the first defendant to the second defendant because this sale was effected when the same godown had already been sold by the plaintiff in exercise of its powers as debenture holder under clause 3 of the debenture. This clause, he said, empowered the debenture holder to sell the C charged property in the event of a default in repaying the loan so secured. Mr Ngero told the trial court that the sale of the godown by the first defendant to the second defendant was subsequent to the sale by the plaintiff at a public auction on 22 August 1994. Mr Ngero mentioned two other matters which in his view tainted the legality of the sale transaction between the two defendants. These were first, that according to the terms of the debenture, the borrower could not sell or transfer D the property so charged without the consent of the debenture holder. Secondly, that after the godown was sold by the plaintiff through a public auction, the first defendant filed a civil suit in court praying for a declaration that the sale by the plaintiff was illegal, but before the court determined the case, the first defendant went ahead and sold the property to the second defendant. It was for this reason, E he said, that the second defendant cannot claim to be a bona fide purchaser for value because he had notice of the sale of the godown by the plaintiff.

On its part, the appellant also called one witness, its erstwhile General Manager, F Hamisi Shilla Kitonka. He told the trial court that the appellant obtained an overdraft facility from the respondent's Manonga branch in Shinyanga township amounting to Shs 50 000 000/=. This loan, he said was secured by a debenture, but he denied that the debenture had any restriction on the appellant's right to deal with G the properties so charged, saying that the appellant was free to

sell any of these properties provided approval was sought and obtained from its Board of Directors. Mr Kitonka added that the loan plus interest of Shs 13 million was to be cleared by 30 September 1994, but in June the respondent recalled the overdraft and H demanded payment within 14 days. The appellant requested for extension of time in which to pay. When this request was rejected, he said, they had no alternative but to sell one of the appellant's properties to raise the required money. It was decided to I

A sell one of the godown which they sold to the second defendant for Shs 60 000 000/=. When this amount was paid on 17 September 1994, it was deposited into their account with the respondent to clear the overdraft but they were informed that the overdraft had been cleared. They did not know how the overdraft had been B cleared. In these circumstances, Mr Kitonka concluded, the sale of the godown to the second defendant by the appellant was perfectly legal.

After hearing all the evidence and the submissions, the learned Trial Judge answered the first issue in the affirmative, namely that the sale and transfer of the C suit premises by the appellant to the second defendant was illegal, because it was contrary to the terms of the debenture which prohibited the appellant from alienating any of its property without the consent of the respondent as the debenture holder except of course in the ordinary course of its business. D

With regard to issue 2, the learned judge answered it in the negative, namely, that the second defendant was set a bona fide purchaser for value without notice because the sale of the godown between the two was tainted with fraud.

Lastly, the learned Trial Judge answered the third issue in the affirmative, that the E respondent had a good title to pass. In the circumstances, the learned judge entered judgment for the plaintiff as prayed, and also declared that the sale and transfer for the godown by the appellant to the second defendant was illegal, null and void. The judge also made a consequential order that the register of titles be F rectified by deleting the registration of the second defendant as owner thereof and further that the purchaser at the public auction be registered under s 51(1) of the Land Registration Ordinance Cap 334.

This decision aggrieved Shinyanga Regional Trading Company Ltd which then G filed this appeal, the memorandum thereof consisting of six grounds of appeal.

Before dealing with the appeal on merits, there is a point which we feel is of such importance, though not part of this appeal that it should be dealt with to avoid it misleading the lower courts if not the High Court itself. H

At the commencement of the trial, counsel for the defendants raised a preliminary objection which is so pointless both in fact and law that we feel the Trial Judge should not have expended so much energy and time trying to resolve it. In his preliminary objection, counsel for the defendants urged the court to dismiss the case against the second defendant because in his view it was wrongly I

joined. Counsel told the trial court that the second defendant was wrongly joined A because the suit in question in founded on two unrelated contracts. One contract was what he called a debenture contract under which the respondent advanced Shs 50 million to the appellant and that since the second defendant was not a party to this contract, it could not be sued on it. The second contract, he B submitted, involved the sale of the godown by the appellant to the second defendant to which the respondent was not a party, hence it could not sue on it. We remarked that this objection was pointless both in fact and in law, because it is clear to anyone reading the plaint that the respondent was not suing on any C contract even if there was such a thing as a debenture contract or agreement in law. The respondent was simply challenging the legality of the sale and transfer of property over which it believed it had a legal charge. This is the factual position. On the legal front, there is no such thing as a debenture contract or agreement in law for the simple reason that such contract is impossible to make. A contract, like the D tango, takes two to materialise. But a debenture, being simply a document issued by a company as evidence of its indebtedness which is normally secured by a charge over its property, can only be made and issued by one side, namely the borrowing company. Therefore, since counsel was making submissions on E points whose legal significance he did not obviously understand, the judge should have dismissed the objection in a few lines, mostly asking counsel to make himself more familiar with concepts in company law. Unfortunately, the learned judge went to far as to commend counsel for what he called his `lucid F submissions', and throughout the proceedings and in his judgment, the learned judge talks of `debenture agreement'. If left uncorrected it can create a wrong impression in the lower courts that there are such things as debenture contracts and agreements in company law. Although the words of Chitty, J in Long v Abercorris Slate & Slab Co (1) at 264 to the effect that: G

`I cannot find any precise legal definition of the term ``debenture'', it is not either in law or commerce a strictly technical term of what is called a term of art' H

sound severely pessimistic on the meaning and nature of debentures, it does not mean that the term is incapable of having a precise meaning or that its meaning is so elastic as also to be a species of contract. Of course the rights of the debenture holder are contractual rights against the borrowing company, but these contractual I

A rights relate to the agreement to lend by the lender and to borrow by the creditor. Debentures then are species of documents issued by companies evidencing their indebtedness which [the indebtedness], is normally but not necessarily secured by a charge over the company's property. Debentures which do not provide a charge are called naked debentures. In sum then debentures are a class of securities issued by companies. B

Having put the legal and factual position on the correct footing, we are now in a position to deal with the appeal before us.

C As we have already indicated, the appellant filed a six point memorandum of appeal, but in our view the controlling ground is ground No 3, in which the appellant complained that the learned judge erred on point of law and fact in holding that the debenture agreement (sic)

exhibit P1 is a valid debenture for the 1993/1994 loan. D We say this is the controlling ground because the way this ground is determined will affect the outcome of the entire appeal. On this point depends the determination of the question in ground one, that is whether the sale and transfer of the godown by the appellant to the second defendant was legal. It will also determine the question in ground 5, that is whether the respondent was entitled to sell the godown and pass the title to the purchaser. E

The learned Trial Judge made the decision on the validity of the debenture while dealing with issue No 3 which was whether in the circumstances, the plaintiff was entitled to sell and pass title to the purchaser. As already indicated, the learned F judge answered this issue in the affirmative holding that the plaintiff had a good title to pass, but we feel that the first part of the issue which is whether the plaintiff was entitled to sell the premises under the terms of the debenture was not clearly dealt with. This question was a subject of detailed analysis by counsel for the appellant in his final written submissions. In his detailed submissions, learned counsel G stated that the plaintiff (present respondent) was not entitled to sell the godown to recover its loan, because firstly the respondent did not have such power under the debenture under which it purportedly acted. In law, counsel stated, the remedies H available to the debenture holder in case of default in the payment of the principal amount or interest, are to sue for the recovery of the outstanding amount; to file a petition in court for the winding up of the company; to exercise any of the powers conferred by the debenture ie appointing a receiver or if the debenture does not contain such powers, the debenture holder may apply to court for the appointment of a receiver and/or manager, or an order for sale or foreclo- I

sure. Learned counsel stated further that as the debenture relied upon by the A plaintiff did not confer on it any power of sale, it was incumbent upon it to apply to the court for an order of sale. Hence, he concluded, as it had neither the power of sale under the debenture nor a court order to sell the godown by public auction, the sale effected by the respondent was illegal, therefore null and void and no title was thereby passed. B

The second reason given by learned counsel in his submission was that when the respondent proceeded to auction the godown on 20 August 1994, it had already been sold on 10 August 1994 hence there was no subject matter to sell on 20 October 1994. In these circumstances, he stated, both the auctioneer and C purchaser acted under a mistake of fact as to the existence of the subject matter so that under s 30(1) of the Law of Contract Ordinance Cap 433, the resulting contract of sale was void.

The learned Trial Judge dealt with the question on the assumption that the D respondent's loan to the appellant was still secured by the debenture and that in selling the godown to recover the loan, the respondent was properly exercising its professed power of sale. After discussing what happens at a sale by public auction, and as to when the contract is concluded, pointing out that such a transaction is subject to the doctrine of caveat emptor, the judge concluded as follows: E

`This explains why s 51 (1) of the Land Registration Ordinance does not require, in cases where property is sold by a lender in the exercise of his professed power of sale, the registrar or

purchaser to enquire whether any default has occurred. The power of sale need not be F absolute, it is enough that a reasonable man, prudently investing his money in land will have reasonable grounds upon which to believe that the lender has power to sell the property. In my view such power is presumed to exist where the sale is by public auction. The power to sell or to be specific, the lender's professed power of sale at the public auction in question is G protected by the operation of the doctrine of estoppel. There are several types of estoppel, but estoppel by reputation is more relevant here. By this doctrine, where the owner of property by words or conduct represents or permits it to be represented that another person is the owner of goods or other properties, any sale of such property by that person is valid against the true H owner as if the seller was actually the owner thereof as regards anyone buying such property on reliance or the reputation. It has also been said that estoppel would arise if the true owner represents or permits it to be represented that he had no interest in the goods. In this case that is how PW1 behaved. He made no I

A attempt to stop the sale until 6 days later when he filed a suit in court. Hence the first defendent is estopped from asserting that the plaintiff could not pass a good title to the purchaser.'

In support of these views the learned judge quoted the remarks of Devlin J in the English case of Eastern Distributors Ltd v Goldring (2) at 608: B

`The class of questions which relate to how far a person who is not the real owner of goods, but who appears to the world, or rather to those who deal with him as owner; and who deal with him on the faith of his apparent ownership should be called to confer upon a third party a greater title than he himself has . . .' C

And in an earlier case, Commonwealth Trust v Aktoy (3) , it was decided that `if someone permits goods to go into possession of another, with all the insignia and D indicia of apparent title, it would be inconsistent with legal principle to permit the transaction to be upset'. However the difference with the present case which the learned judge apparently missed is that in this case the appellant did not permit the premises to go into the possession of the respondent, to the contrary, he did not or refused to surrender the title deeds thereof, and did not register the debenture as required by law. E

But as we have already stated, these findings of the learned Trial Judge were predicated on the premise that the security provided by the debenture was available to the respondent at the time it decided to sell the godown to realise the amount of the loan. Indeed, ever the two reasons given by Counsel for the F appellant in his written submissions on issue No 3, were based on the same assumption and throughout the proceedings in the High Court, the case proceeded on that basis. Both sides in the case saw the wisdom of engaging the G services of more experienced counsel to argue their respective cases in this court. In recognizing the talents of counsel on both sides, we want to say that the parties could not have made better choices. Both Mr Rweyemamu who marshalled the appellants' case, and Professor Fimbo who resisted the appeal on behalf of the respondent, left no stones unturned in their respective fights both at

factual and legal levels. Our wish is that such high level performance will become H standard to the greater majority of the members of the Tanzania Bar.

In arguing the appeal, Mr Rweyemamu learned Counsel for the appellants, discarded the premise adopted throughout the trial both by the trial court and counsel who appeared in that court, that the I

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security provided by the debenture was still available to the respondent at the time A of the sale of the godown by public auction. Mr Rweyemamu submitted that as the debenture was not registered, the loan extended by the respondent to the appellant remained unsecured. He added that under s 79 of the Companies Ordinance, Cap 212, an unregistered debenture is void against the liquidator and any creditor of the company. Therefore, he said, the rights of the respondent as an B unsecured creditor was to demand repayment within forty-two days after its loan became unsecured. After this period, he said, the respondent could not go back to the debenture and purport to exercise the power of sale under it. The only course C open to the respondent as an unsecured creditor, he added, was to proceed by way of ordinary civil suit to recover its unsecured loan. With regard to the allegation that the appellants' sale of the godown to the second defendant was tainted with fraud, Mr Rweyemamu submitted that the fraud, if any, could only D affect the sale to the second defendant if at the time of this sale, the loan advanced by the respondent was still secured by the debenture. This is because, he contended, there can be no fraud in the sale to the second defendant if the debenture no longer acted as security for the respondent's loan. With the E debenture no longer in force, he said, the godown was not encumbered, with the consequence that the appellant was free to dispose it in any manner it wished. This freedom, he added, extended to the manner in which the appellant treated the proceeds of such sales. As a corollary to their argument, Mr Rweyemamu F submitted that as the respondent, the debenture holder, no longer had any rights under the debenture, it could not purport to exercise the power of sale under that debenture even if the said debenture provided such power, hence the respondent had no right to sell the godown, he had no title in the godown which he could pass to any buyer. G

On his part, Professor Fimbo dealt with the debenture at three levels. These were the validity of the debenture at the time the respondent decided to auction the godown. The powers of the debenture holder and the fraudulent acts of the appellant company.

With regard to the status of the debenture at the time the godown was being H auctioned by the respondent, Professor Fimbo submitted that it was still in force. He conceded that the debenture was not registered, but added that it was not registrable under s 8(2)(d) of the Registration of Documents Ordinance Cap 117 because a debenture does not create a trust, and ss (2)(k) of the same Ordinance excludes all documents relating to land from registration under the I

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A Ordinance. The only law, he said, which requires registration of debentures is the Companies Ordinance Cap 212 under s 80, and that the consequences of non-registration are listed in s 79. But, he added, the only way in which this debenture could be extinguished or brought to an end was through the conditions B in para 17 being satisfied and that there is no evidence indicating that these conditions were satisfied, hence in his submission, the debenture was still subsisting at the time the respondent decided to auction the godown under it.

C Regarding the powers of the debenture holder, Professor Fimbo conceded that no receiver or manager was appointed and that under the terms of the debenture, the respondent could not exercise the power of sale directly, but he urged this court to accept the Trial Judge's justification of the respondent's direct exercise of the power of sale, namely that it was exercising its professed power of sale as lender and that this professed power of sale exercised through a public auction, is protected by operation of the doctrine of estoppel. D

Lastly, regarding the appellants' fraudulent acts, Professor Fimbo painted the following picture of the appellant's conduct and actions which he said were fraudulent and that therefore the subsequent sale of the godown by the appellant to the second defendant was void. He said that the appellant issued a debenture to E the respondent on the security of which the respondent lent moneys to the appellant. After completion of this agreement for an overdraft facility secured by the debenture, the appellant behaved in the following manner.

F Firstly, it failed or neglected to register the debenture with the Registrar of Companies. Secondly, the appellant failed to hand over title deeds to the respondent of the properties charged by the debenture. Thirdly, the appellant suffered distress by the Income Tax Department and upon the sale of its motor vehicle in satisfaction of this distress, the appellant deposited with another bank, CRDB, the proceeds of such sale contrary to the provisions of para 4 of the G debenture which provided that during the continuance of that security (the debenture), the respondent would be appointed and act as the sole banker of the appellant. Fourthly, that the appellant failed to pay the loan after receiving notices from the respondent. Lastly, that even after learning of the sale of the godown H through public auction; sending its officials to the auction and informing its customer of this sale, the appellant still went ahead not only with the sale of the godown to the second defendant, but actually proceeded to execute a deed of transfer in its favour. In addition, Professor Fimbo went on, at the hearing of Civil Case No 18 of I

1994, the appellant committed another act of fraud, in that it concealed from the A High Court the act of transfer of the godown to the second defendant. By concealing vital information from the court, Professor Fimbo submitted, the appellant was defrauding it. Quoting a decision of this court in Mtumwa Rashid v Abdallah Idd and Another (4), Professor Fimbo asserted that a transaction like the B one in the present case, which is tainted with fraud, is void and should be set aside. On this principle, he urged this court to set aside the sale and transfer of the godown by the appellant to the second defendant.

In our view, these strongly opposed positions can only be resolved by the court C applying the relevant provisions of the law. The debenture Exhibit P1 was not registered both under the Registration of Documents Ordinance Cap 117 and the Companies Ordinance Cap 212. The effect of this non-registration according to Mr Rwayemamu was to render the debenture ineffectual leaving the respondent's loan to the appellant unsecured. Section 9 of the Registration of Documents Ordinance provides as follows: D

`9. No document of which the registration is compulsory shall be effectual to pass any land or any interest therein or render such land liable as security for the payment of money, or be received as evidence of any dealing affecting such land unless and until it has been E registered.'

Professor Fimbo's answer to this was that this provision cannot invalidate the debenture because it was not registrable under Cap 117 s 8(2)(d) thereof, as it did F not create a trust and that it was also excluded by the provisions of ss (2)(k). We agree, and that for that reason, the debenture's effectiveness cannot be determined by s 9 of the Registration of Documents Ordinance Cap 117. But the debenture was most certainly compulsorily registrable under the Companies Ordinance. Section 80 thereof provides as follows: G

`80 (1) -- It shall be the duty of a company to send to the Registrar for registration the particulars of every charge created by the company and of the issue of debentures of a series, requiring registration under the last foregoing Section (s 79) but registration of any such H charge may be effected of the application of any person interested therein.

(2) Where registration is effected on the application of some person other than the company, that person shall be entitled to recover from the company the amount of any fees properly paid by him to the registrar of the registration . I

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AI (3) If any company makes default in sending to the registrar for registration the particulars of any charge created by the company, or of the issues of debentures of a series requiring registration as aforesaid, then, unless the registration has been effected on the application of some other person, the company and every director, manager, secretary or other person, who is knowingly a party to the default, shall be liable to a fine not exceeding twenty thousand shillings for every day during which the default continues.' [emphasis is ours] B

And s 79 provides as follows

C `79 (1) -- Subject to the provisions of this part of this Ordinance, every charge created after the fixed date by a company registered in the territory and being a charge to which this section applies shall, so far as any security or the company's property or undertaking is conferred thereby, be void against the liquidator and any creditor of the company, unless the prescribed particulars of the charge, together with the instrument, if any, by which the charge is created or D evidence, or a copy thereof verified in the prescribed manner, are delivered to or recovered by the registrar for registration in a manner required by this ordinance within forty two days after the date of its creation, but without prejudice to any contractual obligation for repayment

of the money thereby secured, and when a charge becomes void under this section the money secured thereby shall immediately become payable. E

(2) This section applies to the following charges.

F (a) A charge for the purpose of securing any issue of debentures.

...

...

...

...

(f) A floating charge on the undertaking or property of the company.' G

This section then applied to the debenture Exhibit P1 issued by the appellant. Professor Fimbo conceded that the debenture Exhibit P1 was required to be registered under s 80 of the Companies Ordinance and that the relevant penalities for default are spelt out in s 79, but he submitted that despite this non-compliance H with s 80, the debenture was still in force because, in his submission, the only way in which this debenture could be brought to any end was through the realisation of the conditions in para 17 of the debenture and that there is no evidence that the conditions in that paragraph had been satisfied. We appreciate the ingenuity of the argument, but with respect it has no validity. A private agreement I

cannot replace the clear terms of the law of the land. No one is allowed to contract A out of the law. Sections 80 and 79 of the Companies Ordinance, are quite clear as to the registration of charges and the consequences of non-registration, that if the charge is not registered within forty two days, it becomes void, and the loan so secured becomes immediately payable. Therefore, since this debenture was not B registered under s 80 within forty two days, it became void at the end of that period. The respondent's overdraft facility became unsecured, the debenture as it were passed out of existence. All that the respondent was left with was his contractual rights to recover the debt under ordinary civil litigation. When therefore C the respondent embarked upon the exercise of its purported power of sale under the debenture, and sold the godown through a public auction, it had no such right of sale, it had no interest in the godown which it could pass to any buyer. The sale of the godown by the respondent was null and void and therefore no interest passed to the buyer. D

But even if the debenture Exhibit P1 had been properly registered and was valid at the time of the sale of the godown by the respondent, it would make no difference on the validity of the sale by the respondent, because, under the debenture the respondent had no direct power of sale. All that the debenture provided was for the E appointment of a receiver in the event of a default. The receiver would then act in the interests of both the lender and the borrower. The respondent could not act as receiver under the debenture. As Katiti, J remarked in a ruling in Civil Application No 18 of 1994 relating to the same subject matter: F

`the defendant (present respondent) reserved itself (sic) a blank cheque, to recover its money ie appoint itself a prosecutor, judge, pass judgment/decree execute the same, initiate the public auction and pocket the proceeds thereof'. G

In his submission, Professor Fimbo was aware of this difficulty. As indicated earlier, he conceded that no receiver was appointed in terms of the debenture, nevertheless, he urged this court to agree with the Trial Judge's justification of the respondent's action, namely, that it was properly exercising its professed power of H sale. This may be so, but if the respondent had any power of sale, professed or otherwise, such power could only be derived from the debenture which spelt out the mode of exercising it namely through a receiver duly appointed. The respondent had no direct power of sale which it purportedly exercised in this case. In the circumstances, the respon- I

A dent had no interest in the godown which it could pass to the purchaser at a public auction. The sale was therefore null and void. But as we have already found, the debenture had already been rendered void at the time of the sale of the godown by public auction. We therefore agree with the complaint in ground 3 of B the memorandum of appeal that the learned Trial Judge erred in law and fact in holding that the debenture was valid for the 1993 of 1994 loan. It was rendered void after forty two days for non-registration.

We said earlier that this was the controlling ground of appeal, because the way this ground is resolved would effect the outcome of the appeal. It would affect the C determination of the complaint in ground one namely whether the sale and transfer of the godown by the appellant to the second defendant was legal. The Trial Judge ruled that it was not in that it was tainted with fraud. But this finding D was based on the premise that the debenture was valid and subsisting at the time the two sales by the respondent and the appellant were undertaken and concluded. Since we have found that the debenture was already void at the time of the two sales, the godown was not in any way encumbered as the respondent's loan was unsecured, the appellant was free to deal with it in any manner it wished. There could be no fraud in the appellant selling its unencumbered property or E depositing the proceeds of any such sale in any bank it wished, since the debenture which restricted its banking transactions to the respondent was no longer in existence. Hence the instances of fraud enumerated by Professor Fimbo against the appellant have no relevance. We therefore say that the sale and transfer of the godown by the appellant to the second defendant was perfectly legal. F

Our resolution of the complaint in ground 3 also effectively determines the complaint in ground 5 that is whether the respondent was entitled to sell the godown and pass the title to the purchaser at the public auction. The learned Trial G Judge found that he had such right and title, but we have already held in the course of determining the complaint in ground 3 that the respondent was not entitled to sell the godown and had no title to pass to the purchaser. With these findings, the complaints in grounds 4 and 6 automatically fall away, ground 2 was abandoned. However, we would like to say in connection with the complaint in H ground 6 that we agree with it. The Trial Judge was wrong to grant reliefs which were not asked for in the pleadings, namely the rectification of the register and the registration of the purchase at the public auction.

Before we end, we would like to point out that the respondent I

MFALILA JA
found itself in this predicament largely through the ineptitude of its legal A department. For instance, how could the respondent's legal department sit idly by without monitoring the security of the loan the respondent had advanced to the appellant? The respondent's legal department was either negligent or incompetent, for we cannot see how they could have failed to ensure that the appellant complied with s 80 of the Companies Ordinance, or taken steps themselves and registered B the debenture as they are empowered by ss (1) of that section, because the respondent was surely `a person interested therein'. After such registration, the respondent could then have compelled the appellant to comply with s 83 of the Ordinance that is endorsing the certificate of registration on the debenture. C
The result of our findings on grounds 1, 3 and 5 is that this appeal succeeds. We allow the appeal and set aside the judgment and order of the High Court. The appellant will have its costs of this appeal and those in the court below. We also allow costs for two Counsel as well as the preparation of the record because if the D record was defective or incomplete, the rules allowed the respondent to file a supplementary record. The costs so incurred would then be considered. E
1997 TLR p93

WILLOW INVESTMENT v MBOMBO NTUMBA AND TWO OTHERS 1997 TLR 93 (CA) F

Court Court of Appeal of Tanzania - Dar es Salaam G
Judge Nyalali CJ

CIVIL APPLICATION 13 OF 1997
13 March 1997
(Application for stay of execution from the decree of the High Court of Tanzania, Dar es Salaam, Mapigano J) H
Flynote
Civil Practice and Procedure - Appeal - Stay of execution pending appeal - Requirements for - Proceedings must be properly before court. I

-Headnote
A In an application for a stay of execution pending appeal it appeared that the intended appellant had not lodged an application for leave to appeal even though such was required in the circumstances and by the time of hearing of the present application the leave was already time-barred.
Held:

(i) The power of the court to grant a stay under Rule 9 was exercisable only in proceedings which were properly before the court; B

(ii) The application was accordingly incompetent and could not be heard.

Case Information

Application struck off.

No cases referred to C

Maira, for the applicant.

Wambali and Mwaikusa, for the respondents.

[zJDz]Judgment

Nyalali, CJ

D This is a ruling on a preliminary objection raised by Counsel for the second and third respondents against the hearing of the application for stay of execution pending appeal. The applicant, namely Willow Investment, is represented by Mr Maira, learned advocate, whereby the respondents, namely Mrs Mbombo Ntuba, hereinafter called, the first respondent, and OCS Company, hereinafter called, the E second respondent, and Gecamines, hereinafter called, the third respondent, are represented by Mr Wambali and Mr Mwaikusa, learned advocates, the objection is based on three grounds which read as follows: F

(a) That the application has been filed without complying with Rule 44 of the Tanzania Court of Appeal Rules, 1979;

(b) That the High Court decree, the execution of which is sought to be stayed by the application, is neither attached to the said application nor otherwise made known to the respondents; and G

(c) That the third named respondent, who was not a party to the matter whose decision has given rise to the intended appeal as well as to this application has been joined as a party without the leave of the court.

H In the course of hearing the objection, the court pointed out to the parties another basis which appeared to affect the competency of the application for stay of execution and that is the failure by the intended appellant to seek leave to appeal to this court. In the course of arguing in support of the objection, Mr Mwaikusa, learned advocate, conceded to the effect that ground number one I

was misconceived, since in the light of precedent, an application for stay of A execution cannot be entertained by the High Court after notice of appeal has been given, as is the position in the present case.

With regard to the second ground, a consensus emerged between counsel on B both sides to the effect that the use of the word `decree' in the notice of motion for stay of execution is a misnomer and should be understood to refer to a decree consequent upon the ruling by Mapigano, J, dated 6 February 1997. In the light of that understanding, Mr Mwaikusa learned advocate indicated an intention on their side to seek permission to file a counter affidavit before the application could be heard. C

On the third ground, Mr Maira, learned advocate after being made aware of the contents of a relevant part of the record of proceedings in the High Court, conceded that the third respondent was wrongly joined to the application, as that party had been withdrawn therefrom. D

As to the point raised by the court, it is accepted by both sides that the ruling by Mapigano, J, which is sought to be challenged in the intended appeal, is in law not appellable as a matter of right but requires leave to appeal granted by either the High Court or this Court. It is also accepted by both sided that no steps have been E taken to date to seek such leave, and that, in fact, since Mapigano, J's ruling was given on 6 February 1997, such steps are already time-barred by virtue of the provisions of para (b) of Rule 43 of the Tanzania Court of Appeal Rules, 1979. F

After the arguments on both sides were given at 10.40 am this morning, I pronounced an order directing the application to be struck off but I reserved my reasons until 2.00 pm today. I now proceed to give them.

It is apparent that the real problem facing this application at this stage is the point G raised by the Court. Of course I have no doubts whatsoever about the propriety of this move. The court has inherent jurisdiction under Rule 3 of the Tanzania Court of Appeal Rules, 1979, to raise to the parties, early in the proceedings, any point which concerns the competency of the proceedings before it, so as to avoid, H not only unnecessary costs to the parties, but also avoid waste of precious court time.

Mr Maira's submissions on this point are to the effect that the only pre-requisite for an application for stay of execution under Rule 9 of the Tanzania Court of Appeal Rules, 1979, is the prior existence of a notice of appeal, and that since such notice exists I

A here, the court should proceed to hear the application on its merits. The submissions by Mr Mwaikusa and Mr Wambali, are to the effect that since the intended appeal can be made only with leave of the court and since any move to seek such leave is already time-barred, the court cannot proceed to hear the application but should strike it out by virtue of the court's inherent jurisdiction. B

As already indicated in the interim order which I delivered at 10.40 am this morning, I am satisfied that this application is incompetent at this stage. Obviously the power of the court to grant a stay under Rule 9 is exercisable only in C proceedings which are properly before the court. It is apparent from the record that this application was filed in this court on 21 February 1997, that is, a day after the time for seeking leave to appeal, expired. As already mentioned, no move has been made up to now to seek such leave. In the light of this state of affairs, I am fully satisfied that as matters stand at present, this application is incompetent and cannot be heard. That is why I ordered it to be struck off this morning. D

ADAMU MWAIBABILE v REPUBLIC 1997 TLR 96 (HC) F

Court High Court of Tanzania - Dar es Salaam

Judge Mapigano J

MISCELLANEOUS CRIMINAL APPLICATION 1 of 1997 G
20 March 1997 - Dar es Salaam
Flynote
Criminal law - Security offences - Receiving a document in contravention of s 4(3) of National Security Act of 1970 - Requirements of offence - Document communicated against wish of accused. H
-Headnote
The applicant was charged and convicted of a contravention of s 4(3) of the National Security Act of 1970 (receiving a secret document) and sentenced to 12 months' imprisonment. The evidence indicated that the document in question, namely a copy of a letter from the Regional Local Government Officer to the Songea Town Director that the applicant not be granted a business licence for the year 1995/1996, had been I
1997 TLR p97
MAPIGANO J
slipped into his office through the space at the bottom of his door by a person he A did not know or see. The applicant brought an application to be released on bail pending the hearing of his appeal and the court had to consider the prospects of success on appeal.
Held:

(i) That s 4(3) required that where an accused person proved that a document was communicated to him against his wish he had to be B released from the charge. All that the accused had to do in this regard was to prove a prima facie case. The appellant's account was a reasonable one;

(ii) The prosecution had to prove that at the time the document was received the accused knew or had reasonable grounds for knowing that the communication to him contravened the provisions of the Act. This was lacking in the present case; C

(iii) The record was completely silent as to why the document in question was not tendered in evidence. This was a material defect. D

Case Information
Application granted
No cases referred to
Shaidi for the respondent.
[zJDz]Judgment
Mapigano, J
On January 17, 1996, the applicant Adamu Mwaibabile was brought before the E district court at Songea charged with receiving a document knowing that the same was communicated to him in contravention of the National Security Act, 1970, contrary to s 4(3) of that Act. He denied the

charge and it is to be observed that there was a written sanction by the Director of Public Prosecutions that he should be so prosecuted, as required under s 16 the Act. F

The matter arose in this way: By a curious letter dated April 27, 1995, one Mrs Mangwehe, a regional local government officer, directed the Songea Town Director to ensure that the applicant was not granted any business licence for the year 1995/1996. Mrs Mangwehe made it absolutely clear that this directive G emanated from the Songea Regional Commissioner of the day, one Nicodemas M Banduka. On the following day the applicant came by a document which carried the same message, what was described at the trial as a photocopy of the copy of the letter addressed to the Town Director. It disturbed him and he took it to the Town Council Chairman and left it with him. Days later the applicant was H summoned at the police station and interrogated, resulting into the prosecution.

The applicant was convicted of the offence and the trial magis- I

1997 TLR p98

MAPIGANO J

A trate handed down a twelve month jail sentence. He is aggrieved by the trial judgment and has brought it to appeal. A number of grounds are taken in the petition of appeal.

What is now before me is an application that appears has overwhelming prospects of succeeding. Mr Shaidi, Principal State Attorney, has expressed the same view. Properly so, I think. Some of the grounds raised in the petition appear substantial and probably irresistible. B

The first of these grounds related to the failure on the part of the prosecution to produce the document which was the subject-matter of the charge. The record is completely silent as to why the document could not be tendered in evidence. Mr C Shaidi has observed that this was a material lacuna and I entirely agree with him.

The second ground relates to the circumstances under which the document in question came into the applicant's possession. It is quite clear from s 4(3) of the Act that where an accused person proves that such document was D communicated to him against his wish he must be released from the charge. And the court has to bear in mind that the onus of proof thrown on the accused person in that respect is not the beyond reasonable doubt threshold. It is sufficient if he E succeeds in proving a prima facia case. From the very beginning, and throughout the trial, the applicant's account was that the document was slipped into his office through the space at the bottom of his door by a person he did not see or know. This was the only account given as to how the applicant came by the document. Mr Shaidi accepts the view that it was a reasonable account and I am inclined to associate myself with that view. F

The third ground relates to the mental element ie the applicant's awareness at the time when he came into possession of the document. In order to find him guilty of the offence it was inter alia necessary for the prosecution to prove, and for the magistrate to be satisfied beyond reasonable doubt, that at the time he received G the document he knew or had reasonable grounds to believe that the same was communicated to him in contravention of the provisions of the Act. There was hardly any such proof.

In the circumstances this application should be granted. H

Accordingly, the applicant is to be released on bail pending the hearing of his appeal and his release is to be effected without any surety. I

1997 TLR p99

JAMAAT ANSAAR SUNNA v THE REGISTERED TRUSTEES OF UMOJA WA VIJANA WA CHAMA CHA MAPINDUZI 1997 TLR 99 (CA) A

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Makame JA B

CIVIL APPLICATION 46 OF 1996

27 March 1997

Flynote

Evidence - Additional evidence - Subsequent to disposal of matter in High Court - Where C evidence would avoid the demolition of a mosque - Evidence allowed.

-Headnote

The applicant applied for an order to lead additional evidence subsequent to the D disposal of the matter in the High Court. The litigation between the parties involved sensitive titles to land. It was submitted on behalf of the applicant that evidence had been uncovered in the form of survey maps which would have established that there had been no double allocation of plots as held by the High Court. E

Held:

It would be more just that the evidence alleged to have come to light since the determination of the matter in the High Court be adduced where appreciating the true picture could avoid the demolition of a mosque.

Case Information

Order accordingly. F

No cases referred to.

Dr Saffari for the appellant.

Mwakajinga for the respondent.

[zJDz]Judgment

Makame, JA G

This application is by Jamaat Ansaar Sunna who are represented by Dr A J Saffari, learned advocate. The applicant is seeking an order for additional evidence, which application is resisted by the respondent, advocated for by Mr Mwakajinga, learned counsel.

Counsel for the respondent requested that this application be stood down until a H preliminary objection for which he filed a notice way back in July, 1996 is disposed of. Dr Saffari pointed out that he was aware of that application and that he had already filed a counter-affidavit. I decided to go ahead and hear this application. I appreciate of course that if the

respondent's preliminary objection is upheld the main appeal would automatically disappear, but I I

1997 TLR p100

MAKAME JA

A think it is not desirable that this application should remain unattended until after the other application is heard.

This present bridge should be crossed now -- if later the preliminary objection is sustained there would be no occasion to adduce additional evidence even if today's application is allowed. If the preliminary objection is upheld the order for B additional evidence will already be there. If I do not allow this application that would be the end of this matter.

It is evident that the intended appeal arises from a sensitive litigation involving titles to land. Dr Saffari submitted that since the disposal of the matter in the High Court he has researched and discovered the existence of some survey maps which C would have established that there was no double allocation of the plot in issue, and so the High Court (Kyando, J) would not have arrived at the conclusion reached if it was aware of it. Appreciating the true picture would avoid the demolition of a mosque already in use. D

While I find it engaging Mr Mwakajinga's retort that a demolition of the mosque would be justice itself, for indeed justice consists of giving each man his due, I think it will be more just that the evidence alleged to have come to light after the determination of the matter in the High Court should be adduced, in the E circumstances. I take into account, in considering Dr Saffari's submission, the fact that the applicant's case was handled by a string of advocates, four in all before Dr Saffari, and this might have made the applicant fall between several stools, as it were. F

I grant the applicant's prayer for additional evidence regarding the alleged survey maps and order the trial High Court to take such additional evidence, in terms of Rule 34(1)(b) of the Tanzania Court of Appeal Rules.

I make no order as to costs. G

1997 TLR p101

ALOYS LYENGA v INSPECTOR-GENERAL OF POLICE AND ANOTHER 1997 TLR 101 (HC) A

Court High Court of Tanzania - Dar es Salaam
Judge Msumi J

CIVIL CASE 140 OF 1995 B

17 April 1997

Flynote

Torts - Damages - Actions against government - Time bar

Torts - Damages - Actions against government - Requirement of notice C
Civil Practice and Procedure - Verification clause - Requirements
-Headnote
The plaintiff sued the defendant for damages arising from the vandalising of his D property whilst he was in detention. The plaintiff's claim arose in 1984 when he was released from detention whereas the suit was filed in May 1995. The defendant raised three preliminary objections: (a) that the plaintiff had failed to give notice as required under s 6(2) of the Government Proceedings Act 1967; (b) that the suit was time-barred; and (c) that the verification clause was fatally defective for failure to disclose the source of information. E
Held:

(i) As the plaintiff had failed to send a copy of his claim to the Attorney-General as required by s 6(2) and had not complied with the period prescribed in paragraph 6 of the First Schedule to the Law of Limitations Act 10 of 1971 (three years for suits founded on tort) the suit was barred; F

(ii) Order VI Rule 15(2) did not require a verification clause in a plaint or written statement of defence to disclose the source of information or grounds of belief of the matter pleaded: what the verifier was required to do was to itemise in the verification clause matter which were of his personal knowledge and those based on information or belief. G
Case Information
Order accordingly.
No cases referred to.
Kashumbugu for the plaintiff.
Ngwembe for the respondent. H
[zJDz]Judgment
Msumi, J
This ruling is on the three preliminary legal issues raised by the defendant in their joint written statement of defence filed in court on 5 February 1995. The two defendants are Inspector General of I
1997 TLR p102
MSUMI J
A Police and Attorney-General. The suit against them is based on tort. As they appear in the written statement of defence, the said three preliminary objections are:

(i) That the suit is incompetent and was filed in contravention of s 6(2) of Government proceedings Act 1967 as amended by Act 30 of 1994. B

(ii) That the suit is time barred.

(iii) That the verification clause is fatally defective for failure to disclose the source of information. C

On the direction of the court counsel for each party presented written submissions. Amplifying the first issue, Mr Ngwembe, State Attorney argued that s 6(2) of the Government Proceedings Act as amended by Act 30 of 1994 provides that any party who intends to sue the Government

must give notice of not less than 90 days of such intention to the minister or department involved in the suit in D question and a copy of the same to the Attorney-General.
This is what the section says:

`S 6(2) no suit against the government shall be instituted, and heard unless the claimant E previously submits to the Government Minister, department or officer concerned a notice of not less than ninety days (90) of his intention to sue the government, and he shall send a copy of his claim to the Attorney General.'

F No doubt that from the wording of this section the prior issue of notice to the government institution or officer concerned and the Attorney-General is a mandatory pre-requisite condition before one sues the government. It is on this realisation that in his reply to the written statement of defence, plaintiff tried to G controvert the defendants contention by submitting that the required notice was in fact issued to the Inspector General of Police four months before filing of the suit. To substantiate this claim a copy of the alleged notice was attached as annexure to his reply. But the said notice is incomplete because a copy of the same was not sent to the Attorney-General. This shortcoming is among matters raised by counsel for the defendants in his written submission. H

In his conspiciously short submission, Mr Kashumbugu, counsel for the plaintiff, conveniently avoided to make any comment on the merits or otherwise of all the three preliminary issues. Instead he decided to impugn the written statement of defence for being filed I

outside the period prescribed by the court. Hence he urged the court to allow the A plaintiff to prove his case ex-parte under Order 8 Rule 4(1)(b) of the Civil Procedure Code for defendant's failure to file a defence. With respect I am not persuaded by this argument. Admittedly defendants were required to file their defence by 16 January 1996 but they did so on 5 February 1996. However, B according to the court file, by 21 March 1996 plaintiff was already served with the alleged belated written statement of defence and presented his reply to it on 24 April 1996. In his reply plaintiff never challenged the said defence for being filed outside the prescribed time. On the contrary Mr Kashumbugu joined with the counsel for the defendants on 29 May 1996 in informing the court that pleadings C were complete and requested for a hearing date. Under these circumstances the court must be taken to have impliedly allowed the defendants to file their defence on 5 February 1996 and plaintiff must be impliedly taken to have had no objection against the filing of the defence on that date. D

I think it will be an abuse of court process to uphold the plaintiff's contention. Fairness demands that a party who intends to raise a preliminary issue, should do so at an earliest opportunity. In the present case plaintiff ought to have raised the issue in question in his reply to the said defence. He cannot be allowed to do so E now after a period of about one year since he came aware of the alleged issue. The first preliminary issue is therefore sustained. Plaintiff failed to comply with the mandatory provision of s 6(2) of Government Proceedings Act hence the suit is incompetent.

As regards the second issue, plaintiff became aware of the alleged vandalisation F of his property worth Shs 40,000,000/= on 25 February 1984 after he was released from detention. It was from that day or thereabout when the cause of action arose. According to para 6 of the first schedule to the Law of Limitation Act 10 of 1971, limitation period for suits founded on tort is three years. This suit was G filed sometimes in May 1995. The second issue is also upheld in that the suit is time barred as it was filed almost twelve years after the cause of action has arose.
As regards the third issue I am of respectful opinion that the learned counsel for the defendants has seriously misunderstood the provisions of Order 6 Rule 15(2) H of the Civil Procedure Code and the comment by Sarkar on the identical provision of the Indian Code of Civil Procedure. Neither Order 6 Rule 15(2) nor the commentary of the learned author does it require verification clause in a plaint or written statement of defence to disclose source of information or grounds of belief of the matter pleaded. What the verifier is I
1997 TLR p104
MSUMI J
A required to do is to itemise in the verification clause matters which are of his personal knowledge and those based on information or belief. As I said earlier the verifier is not bound to state the source of his information or belief. It appears that the learned counsel is confusing Order 6 Rule 15(2) with Order 19 Rule (1) of the Civil Procedure Code which deals with affidavit. It is provided in the later provision that: B

`3 -- (1) Affidavit shall be confined to such facts as the deponent is able of his own knowledge to prove, except on interlocutory applications, on which statement of his belief may be admitted. C
Provided that the grounds thereof are stated'.
There is no such statutory disclosure requirement for verification in pleadings which is defined under Order 6 Rule 1 to mean:

`... plaint or written statement of defence (including a written statement of defence filed by a D third party) and such other subsequent pleadings as may be presented in accordance with Rule 13 of Order VIII.'

E From these observations the third preliminary issue is overruled. On the other hand I respectfully sustain the first and second issue. The suit is incompetent hence dismissed with costs for non compliance by the plaintiff of s 6(2) of the Government Proceedings Act and filed outside the statutory limitation period of three years. F
1997 TLR p105

PETRO S/O SALILO v REPUBLIC 1997 TLR 105 (HC) A

Court High Court of Tanzania - Mwanza
Judge Lugakingira J

HIGH COURT CRIMINAL APPEAL 145 OF 1996 B
21 April 1997
Flynote
Criminal law - Possession of moshi in contravention of ss 30 and 34(1) of Act 62 of 1966 - Sentence. C
Criminal Practice and Procedure - Prosecutor - Not improper for arresting officer to be prosecutor in case.
-Headnote
The appellant was convicted of possession of moshi in contravention of ss 30 and 34(1) of Act 62 of 1966 and was sentenced to 12 months' imprisonment. A D co-accused was sentenced to a fine of 10,000/=. On appeal against the sentence,
Held:
(i) The disparity in sentences imposed was unjustified and the appeal had to succeed on that basis as well as on the basis that it exceeded the penalty stipulation in the Act; E
(ii) The court remarked further that there was no objection to the arresting officer acting as prosecutor in the case.
Case Information
Order accordingly.
Case referred to:
1. R v Sarwan Singh [1973] LRT No 32 F
Mwambegele for the Republic.
[zJDz]Judgment
Lugakingira, J G
The appellant and another person who was the second accused at the trial were on their own pleas of guilty convicted of being in unlawful possession of moshi contrary to ss 30 and 34(1), Act 62 of 1966. I have perused the record and satisfied myself that the pleas were unequivocal. The problem was with sentencing. The appellant was sentenced to twelve month's imprisonment H because he said nothing in mitigation; the second accused, an 18-year-old female, was fined Shs 10,000/= because she told the trial magistrate: `I pray to be fined'. This appeal is against the sentence. The appellant claims that he is hard of hearing and did not understand what was transpiring at the sentencing. He also lists mitigating factors I

A which include advanced age, poor health and `a dozen of grandsons and granddaughters'.
The appellant's claim that he has lost the capacity of hearing makes no sense and must be rejected for a lie because he is challenging the sentence only, not the conviction. The real problem in the case is indeed whether the disparity in B sentencing was justified. For the information of the trial magistrate, however, even the second accused said nothing amounting to mitigation of sentence but asked for the sentence she preferred. If sentence is going to proceed on the wishes of accused persons, very soon they will also be shopping for the prisons they prefer as is the case in some countries. C

For the further information of the trial magistrate even the `mitigated' sentence he imposed on the second accused was illegal. The offence attracts a maximum fine of Shs 5,000/= but he ordered her to pay twice over!

D I think the disparity was unjustified. Where two or more persons are jointly convicted of an offence, a severer sentence on one cannot be justified by his failure to advance mitigating factors but by aggravating factors on his side.

E Failure and even refusal to speak in mitigation is not an aggravating factor for it is within the accused's lawful discretion. A wrong principle was thus applied in this case and the appeal ought to succeed.

Learned counsel for the Republic also wondered whether it was proper for the arresting officer to prosecute the case, but I see no difficulty in this. There is no F rule really, against this, and in view of the prompt and unequivocal pleas in this case, I think there was no failure of justice. This court has in fact had the occasion to say that there was no bar for a prosecutor to be a witness in the case he prosecutes: see for example R v Sarwan Singh (1).

G The appellant has been in prison since 22 October 1996, a period of six months. I think that serves the justice of the case. I allow the appeal and reduce the sentence to result in his immediate release. In revision I also set aside the sentence imposed on the second accused and substitute a fine of Shs 5,000/=. She should be refunded the extra Shs 5,000/=. H

1997 TLR p107

CHARLES MHISO v GRACE NJAU AND ANOTHER 1997 TLR 107 (HC) A

Court High Court of Tanzania - Dar es Salaam
Judge Msumi J

CIVIL APPEAL 27 OF 1995 B

23 April 1997

Flynote

Civil Practice and Procedure - Chamber summons - Requirements - Lack of stamp with court seal - Although this a requirement, such defect should not be ground for dismissal of suit. C

-Headnote

The appellant had issued summons in a resident magistrate's court but the suit was dismissed for non-appearance of the appellant. The appellant filed a Chamber application requesting the court to set aside the dismissal order but this was dismissed as being defective for want of a stamp of the court seal. On appeal, D

Held:

It was true that a chamber summons without a court seal was of no legal effect but it was not good law that such defect should be ground for dismissal of a suit. E

Case Information

Appeal allowed.
Case referred to:
1. CPC International PLC v Zainab Grain Millers Ltd Civil Case 21 of 1993 (unreported) F
Kisusi and Nchimbi for the respondents
[zJDz]Judgment
Msumi, J G
In the original suit appellant sued the respondents in the Court of Resident Magistrate Kisutu. On 8 November 1993 the suit was dismissed under Order 9 Rule 8 of the Civil Procedure Code for non appearance of the appellant. In response to this order, appellant filed a chamber application requesting the court to set aside the dismissal order. The said application was dismissed with costs on H the ground that it was defective as the chamber summons was not stamped with a court seal. Dissatisfied with this finding appellant decided to lodge the present appeal.
Counsel for each party was required to make his submission in writing and submit it by respective scheduled dates. Up to the time I
1997 TLR p108
MSUMI J
A of preparation of this ruling, counsel for the appellant had not presented his submission. So in the preparation of this judgment the court had only the advantage of the written submissions presented by counsels for the respondents. Without prejudice to his arguments against the appeal on its merits, Mr Kisusi, counsel for the first respondent raised two preliminary objections. His first B argument is that the ruling of the trial court does not amount to a decree against which the appellant would have an automatic right to appeal. The said ruling embodied an order and s 74 and Order 40 Rule (1) of the Civil Procedure Code C specify the orders which can be appealed against. According to the learned counsel the order in question is not among those specified for appeal. I am of a different respectful opinion. The order dismissing the application to set aside the dismissal order was made under Order 9 Rule 9 which, under Order 40 Rule 1(c) is appellable. It is surprising that the learned counsel could not see this clear provision. D
The second objection, to which Mr Nchimbi, counsel for the second respondent, associates himself, is that the chamber summons has not been stamped with a court seal. It is true that it was necessary that the chamber summons had such E stamp. But is the appellant responsible for this omission. It was for the court to imprint such stamp after the appellant had paid the necessary fees. It was unfair for the learned resident magistrate to punish the appellant for non-compliance of an action of which the appellant had no power to ensure its compliance. Hence this objection is also overruled. F
On the merits of the appeal, Mr Kisusi has submitted that the appellant has no valid ground to complain against the ruling of the trial court. He contends that since the chamber summons was not stamped with a court seal, the same was a nullity. In support of this view the learned counsel cited the judgment of this court in G the case of C P C International PLC v Zainab Grain

Millers Ltd (1), In principle it is true that a chamber summons without a court seal is of no legal effect. However, it is not good law that such defect should be a ground for dismissal of a suit. Essentially a chamber summons is an order of the court requiring parties to H appear before the court on a specified date for the purpose of entertaining prayers sought by the applicant. Thus any defect on such order should, at most, have the effect of lacking legal force of commanding the appearance of the parties. Any party who default appearance by command of such summons cannot be subject to the legal conse- I

quences provided under the relevant provisions of the law. A

In conclusion, this appeal is allowed with costs. The trial court is directed to re-admit the application for setting aside the dismissal order. B

UMOJA GARAGE v NATIONAL BANK OF COMMERCE 1997 TLR 109 (CA) C

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga JA D

CIVIL APPLICATION 26 OF 1996

23 April 1997

(An application for extension of time to file Notice of Appeal from the ruling of the E high Court of Tanzania, Dar es Salaam, Bubeshi J)

Flynote

Civil Practice and Procedure - Appeal - Extension of time to file notice of appeal - Fault of counsel in neglecting to obtain Registrar's certificate. F

-Headnote

The applicant applied for an extension of time to file notice of appeal. The same application had been made before but had been refused. There had been two sets G of proceedings in the matter and the applicant, who was aggrieved by the outcome of the proceedings, wished to prosecute the appeal and sought copies of the proceedings. The Registrar supplied a certificate of exemption for the one case but not the other and counsel used the incorrect certificate in the attempt to save the purported appeal in the present case which was long time-barred. H

Held:

(i) It was clear that the error had been committed by the applicant's counsel and the Registrar could not be held blameworthy;

(ii) in the circumstances no sufficient cause had been made out for enlarging the time as prayed.

Case Information

Application dismissed. I
1997 TLR p110
KISANGA JA
A Cases referred to:
1. Daphne Parry v Murray Alexander Carson [1963] EA 546
2. Harram Singh Bhogal v Javda Karsan [1952] 20 EACA 17
Lukwaro for the applicant.
Uzanda for the respondent. B
[zJDz]Judgment
Kisanga JA
This is an application for extension of time to file notice of appeal to this Court. The same application was previously made to the High Court (Bubeshi, J) but was refused. C
Very briefly the background to this matter is as follows: This Court in Civil Appeal No 27 of 1995 struck out the appeal, upon a preliminary objection being taken by the opposite party, on the ground that the said appeal was hopelessly out of time. Following that, the applicant applied to the High Court for extension of time to file D fresh notice of appeal but that application was refused, hence this further application to restore the appeal.
Before me the applicant was represented by Mr Lukwaro, learned advocate, while the respondent was advocated for by Mr Uzanda, learned advocate. In his notice of motion Mr Lukwaro sets out prayer for several orders, the first one being one for E the extension of time to file a notice of appeal. I propose to deal with this one first because the fate of the other orders prayed for necessarily depends on whether or not I grant the extension of time to file notice of appeal. F
The record shows that there were two sets of proceedings in this matter. The first set is the one culminating in the judgment of Mrema J, while the other one concerns an application for leave to file a memorandum out of time to review that judgment, and culminates in the ruling of Bubeshi J refusing the application. In both cases the applicant who was aggrieved, gave notices of intention to appeal and G duly applied to the Registrar for copies of proceedings. His advocate also sent to the Registrar a reminder for the supply of the proceedings relating to the judgment of Mrema, J. The Registrar supplied the proceedings, and acting under Rule 83(1) of the Court of Appeal Rules, he issued a certificate excluding the application of H the limitation period in respect of the proceedings culminating in the ruling of Bubeshi, J; he issued no such certificate, however, in respect of the proceeding culminating in the judgment by Mrema J. Relying on such certificate, counsel for the applicant proceeded to prepare and file the record of appeal in Civil Appeal No 27 of 1995 against the judgment of Mrema J. It is clear, therefore, that the learned counsel relied on the wrong certificate of exemption by the Registrar to file the record of appeal in Civil Appeal No 27 of 1995. That is to say, there was no certificate of exemption by the Registrar to save the purported Civil Appeal No 27 of 1995 I
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KISANGA JA

against the judgment of Mrema J. It is clear, therefore, that the learned counsel A relied on the wrong certificate of exemption by the Registrar to file the record of appeal in Civil Appeal No 27 of 1995. That is to say, there was no certificate of exemption by the Registrar to save the purported Civil Appeal No 27 of 1995 which was long time barred. It is against this background that that appeal, as stated earlier, was struck out as being hopelessly out of time. B

Mr Lukwaro's concern is that the applicant should now be allowed to restore the appeal because the original appeal ie Civil Appeal No 27 of 1995 was struck out partly due to the fault of the Registrar. Counsel contended that the Registrar wrongly supplied a certificate of exemption relating to the ruling by Bubeshi J C notwithstanding that the applicant's counsel had applied to the Registrar, and sent a reminder, for the supply of the proceedings relating to the judgment by Mrema J. According to counsel, had the Registrar granted the certificate in respect of the proceedings relating to the judgment of Mrema J the Civil Appeal No 27 of 1995 D would have thereby been saved; it would not have been struck out for being time barred. Therefore, counsel maintained, the applicant should be allowed extension of time to file fresh notice of appeal, thereby affording an opportunity for the Registrar to grant the appropriate certificate of exemption relating to the judgment of Mrema J. In effect counsel conceded that he wrongly relied on the Registrar's E certificate to file the record of appeal in Civil Appeal No 27 of 1995, but contended that such error on his part was induced by the Registrar by wrongly granting a certificate in respect of the proceedings respecting the ruling by Bubeshi J instead on granting one in respect of the proceedings culminating in the judgment of F Mrema J.

I have carefully considered the submissions by the learned counsel but I could not accede to them. To my mind the Registrar acted properly in granting the certificate G of exemption in respect of the proceedings culminating in the ruling by Bubeshi J because the applicant had given notice of intention to appeal against that ruling and had duly applied to be supplied with a copy of proceedings pertaining thereto. The applicant did not at any time intimate to the Registrar that it had abandoned H the appeal against the ruling in question or that it was no longer taking any steps to pursue it. In those circumstances the Registrar cannot, in my view, be faulted for supplying, as he did, copy of the proceedings relating to the ruling in question and his certificate pertaining thereto. In other words the Registrar supplied the proceedings and the certificate pertaining I

A thereto in response to the standing request by the appellant to be supplied with the same. As the Registrar was performing his lawful duty, therefore, he could not be said to have misled the applicant's counsel or to have induced him to act mistakenly or wrongly.

B On the other hand it is quite apparent that counsel for the applicant is the one to blame for what happened. Had he exercised the minimum degree of diligence, he would have noticed at once that the Registrar's certificate of exemption accompanying the copy of the proceedings sent to him was not what he wanted for the purpose of processing his appeal against the judgment of Mrema J. He C would, no doubt, have asked for the appropriate certificate, and the Registrar

would certainly have obliged. Counsel did not do that, and so he can only have himself to blame for the ill consequences flowing from such failure.

Mr Lukwaro views this failure as an oversight on his part. That is to say, he D concedes that he was responsible for the Civil Appeal No 27 of 1995 being struck out as being hopelessly out of time, and for not having obtained the Registrar's certificate which would have validated that appeal. The question now is whether such an oversight amounted to sufficient cause in terms of Rule 8 of the Court of appeal Rules for granting extension of time now to file a fresh notice of appeal, ie E to restore the appeal. Mr Lukwaro submitted that such oversight constituted sufficient cause within the meaning of the rule but, when asked, he could cite no authority to support the contention.

Mr Uzanda, strongly opposing the application, viewed Mr Lukwaro's handling of this F matter as amounting to negligence which, he contended, cannot afford sufficient cause for granting the extension sought. In support of this submission he cited a number of authorities, in particular the cases of Daphne Parry v Murray Alexander Carson (1) and Harram Singh Bhogal v Javda Karsan (2). G

I am quite clear in my mind that the state of affairs in this case was brought about by the failure of the applicant's counsel to act diligently. He proceeded to lodge the record of appeal in Civil Appeal No 27 of 1995 which was obviously out of time, but without incorporating the Registrar's certificate of exemption, pertaining to the H judgment being appealed against to validate the appeal. Counsel has the duty to ensure that the papers be filed in court not in error.

In this particular case he had a duty, inter alia, to ascertain that the record in Civil Appeal No 27 of 1995 did incorporate the Registrar's certificate of exemption pertaining to the proceedings cul- I

minating in the judgment of Mrema, J. That Mr Lukwaro did not do. It is quite A apparent that his handling of this aspect of the matter was highly irresponsible, to say the least.

The case is almost on all fours with the case of Harram Singh cited above. There, as in the present case, the Court of Appeal for Eastern Africa had struck out an B appeal as being incompetent, the reason for the incompetence being that the record of appeal did not incorporate a copy of the formal or drawn order being appealed against. Whereupon, again as in this case, the intending appellant sought to restore the appeal by applying for leave to file out of time an appeal against that order. The application was brought on the plea, inter alia, that the C omission to file a certified copy of the formal order was due to an honest but mistaken opinion of his advocate. It was held that that alone could not constitute a sufficient cause for granting extension of time. It seems plain to me that in the instant case lack of diligence on the part of counsel, or an oversight as Mr Lukwaro calls it, would be even more devoid of merit as a plea for the extension of time. In D the result, therefore, I am of the view that no sufficient cause has been disclosed for enlarging the time as prayed.

As intimated earlier, the applicant prayed for several other orders which were E necessarily dependant upon the prayer for the extension of time to file a notice of appeal which I have

refused. With that refusal, therefore, it is now not necessary to consider the prayer for the other orders. In the event the application is dismissed with costs. F
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JACKSON MUSSETTI v BLUE STAR SERVICE STATION 1997 TLR 114 (HC) A

Court High Court of Tanzania - Mwanza
Judge Mrema J B

HIGH COURT CIVIL CASE 65 OF 1994
24 April 1997
Flynote
Contract - Breach of - Negligence - Damages - Quantum. C
-Headnote
The plaintiff sued the defendant for damages arising out of breach of contract. The plaintiff had hired the defendant's motor-vehicle to transport and deliver 9000 litres of fuel which he had bought from a third party. When the fuel was delivered it was put into the incorrect tanks and mixed with other fuel which rendered it all, bar 1500 litres, useless. The plaintiff rejected the delivery of 7500 litres which were D then stored by defendant when they reacted to a notice from the plaintiff's advocate and offered to pay the cost of the fuel mixed up at cost price over 20 monthly instalments. The plaintiff did not accept this and issued the present suit, claiming 40,000,000/= as general damages, being compensation for damage caused to his business and personal integrity as a businessman, and 2,427,250/= as special damages arising from the loss of the fuel products he had purchased. E
Held:

(i) It was clear from the evidence that the defendant's employees had been negligent in delivering the fuel to the plaintiff; F

(ii) Under the Tanzanian Sale of Goods Ord, Cap 214 s 32(1) where the seller delivered to the buyer a quantity of goods less than contracted , the buyer, in accepting the goods so delivered, had to pay for them at the contracted price. In the instant case the plaintiff had rejected the 7500 litres. The defendant had breached the terms G of the contract in not delivering petrol and diesel in their natural chemical form. The defendant continued to hold the contract alive however until the time when its advocate wrote to the plaintiff's advocate disclaiming negligence and liability. The plaintiff was therefore entitled to sue for breach of contract and damages arising therefrom;

(iii) The circumstance that the plaintiff's agency agreement was H terminated by BP (T) Ltd was not one which would have been contemplated by the defendant when agreeing to transport the goods to the plaintiff. It was a circumstance far removed from the original intentions of the parties and could not be held against the defendant;

(ii) The plaintiff's loss of profit occasioned by the breach had to be determined by the period between the date of delivery and the date of repudiation of the contract, a period of 42 days. I

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MREMA J

(iii) The plaintiff had not been unreasonable in rejecting the defendant's A offer of payment by instalment.

(iv) The plaintiff was entitled to be compensated for the loss of the value of the consignment and the loss of profit thereon.

(v) The plaintiff was also entitled to compensation for the tortures which were inflicted by his anguish of mind and for the loss of his goodwill and an amount of 1,800,000/= by way of general damages would suffice. B

Case Information

Judgment for the plaintiff.

Cases referred to:

1. R F Mboya v Mewa Mangata [1969] HCD 1 C
2. Frost v Knight [1987] LR 7 Ex III 110
3. Tin Containers Ltd v Kencon [1971] EA 216
4. Thompson v Robinson (Gunmakers) Ltd [1954] 2 WLR 185
5. Carter v Sullivan [1957] 2 WLR 528
6. Hadley v Baxendale [1854] 9 Exch 341; 2 WR 402; 156 ER 145 D
7. Nhuvya s/o Subajiwa v Jackson s/o Chilewa [1972] HCD 193
8. Roth & Co v Tayson, Townsend & Co [1895] 1 Com Cas 240
9. Dunkirk Colliery Co v Lever [1880] 41 LT 633
10. White & Carter (Councils) Ltd v McGregor [1961] 3 All ER 1178
11. Payzu v Saunders [1919] 2 KB 581
12. E Hulton and Co v Jones [1910] AC 20 HL E
13. Engel v Fitch [1868] LR 3 QB 314
14. Yuille v B & B Fisheries (Leigh) Ltd and Bates [1958] 2 Lloyds Rep 596
15. McArthur v Dominion Cartridge Co [1905] AC 72 PC
16. Barkway v South Wales Transport Co Ltd [1950] 1 All ER 392 HL
17. Dewshi v Kuldp's Touring Co [1960] EA 189
18. Embu Public Road Services Ltd v Riimi [1968] EA 22 F
19. Msuri Muhhidn v Nazzor Bin Seif el Kassaby and Anor [1968] EA 201

Dr Lamwai and Magafu for the plaintiff

Matata for the defendant.

Judgment

Mrema J G

This is a simple suit arising from an alleged breach of contract between Jackson Mussetti, the plaintiff and M/S Blue Star Service Station, the defendant. The plaintiff agreed to pay for the transport costs for the delivery of nine thousand litres of petroleum products the plaintiff had

purchased from M/S BP Tanzania Ltd, at H Mwanza South Depot and the defendant accepted to transport and deliver the said goods at the plaintiff's place of business, to wit, Musoma Service Station. This agreement was reached at the depot of BP Tanzania Ltd, on 14 August 1994 between one Mr Mafuru, the plaintiff's employee, and one Latiff, the defendant's employee and driver. I

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MREMA J

A The agreement was further cemented or ratified by Selum Nurjin (DW1) who gave the driver and his turnboy (DW2) a go ahead, after the latter had reported to PW1's office in the presence of one Mr Mafuru, PW1's employee.

B It then turned out at the Musoma Service Station the delivery of the goods created a problem. In the course of the delivery there occurred a mess up to the effect that petrol was mixed up with diesel when off loading the products into the underground tanks at the plaintiff's service station. The mess up was discovered there and then, as the delivery of the same continued, and it transpired that seven thousand five hundred litres out of the nine thousand litres had been off loaded and so mixed up. The one thousand five hundred litres which had not been mixed up C was delivered into underground tank not yet polluted. The plaintiff (PW1) whose attention was drawn by PW3, one Tabu Athumani, who was PW1's pump attendant at the station, refused to honour delivery and possession of the goods. Instead, he (PW1) ordered Latiff, DW1's driver, to siphon out the seven thousand D five hundred litres of the products spoilt and return them to the tanker-chambers and have them returned to the defendant, Norjin (DW1), in Mwanza.

E A few days later, ie on 20 September 1994, the plaintiff, through Dr Lamwai, sent a demand note to the plaintiff demanding compensation for the mixed up products, to wit, petrol and diesel. This assertion is affirmed by the defendant's response, through his advocate, Mr Matata, by a letter dated 26 September 1994, F denying liability and there instead claiming compensation in the amount of Shs 2,800,000/= against the plaintiff attributing that liability to a loss of business for grounding his tanker TZ 45524 because of continuing to hold the `dead stock' from 14 August up to 24 August 1994. The latter (exhibit P3) averred that the seven thousand five hundred litres of petroleum products were delivered to the plaintiff's G station as agreed and the tanker emptied the said goods into the station's underground tanks as duly instructed by the plaintiff's pump attendant. Therefore, the defendant threw the blame to the plaintiff on the account of negligence caused by PW1's employees or servant. In the alternative, however, the defendant offered to pay the cost of the fuel (mixed up), ie seven thousand five hundred litres, at cost price by monthly instalment of Shs 100 000/=. H

The plaintiff did not see the offer as being a reasonable package, hence the present suit. As per the plaintiff's prayer in para 3 of the plaint, the plaintiff is claiming against the defendant a sums of Shs 40,000,000/= as general damages, being compensation to da- I

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mage caused to his business's reputation and his personal integrity as A businessman. He is also claiming Shs 2,427,250/= as special damages arising from loss of the fuel products he had purchased from BP Tanzania Ltd. According to para 4 of the plaint, the value of the products, apparently as bought from the BP Depot, was Shs 2,185,000/=. Para 5 of the plaint accuses the defendant in that the B latter's servants or employees negligently mixed up petrol and diesel at the time of delivery thereby mixing the products in wrong tanks in consequence of which the mixtures were rendered unsaleable. In the result, the plaintiff pleads that the defendant is vicariously liable for the negligent or wrongful acts of his servants or employees. C

The particulars of negligence as pleaded by the plaintiff are:

(a) Failure of the defendant's employee to recognize the compartments of their tanker, Registration No TZ 45524 contained petrol and which contained diesel. D

(b) In consequence of (a) above, delivery by the defendant's servants of fuel into the wrong tanks and mixing the products up.

(c) The plaintiff will rely on the doctrine of res ipse loquitur. E

It is the plaintiff's assertion that as the rule of the negligence referred to at para 5 of the plaint, the plaintiff suffered loss. He (plaintiff) splitted special damages into two: (a) Loss of the consignment amounted to Shs 2,185,000/=; and (b) Loss of profit on the consignment, he put it at Shs 242 250/=, giving a total amount of special damages at Shs 2,427,250/=. He has also raised a claim on costs at Shs 600 F 000/= being charges for following up on the loss, thus raising the total on special damages to Shs 3,027,250/=.

As to general damages, the plaintiff has averred at para 7 of the plaint to the effect that in consequence of the loss resulting from the defendant's servants negligence, the plaintiff failed to carry on his business and in the result his service station remained without business; hence his prayer that the defendant be ordered to pay the plaintiff compensation in the sum of Shs 40,000,000/= as general G damages -- for the loss of business, pain and suffering incurred.

Finally the plaintiff prays that the defendant also be condemned to pay costs on the decretal sum at the court's rate from the date of judgment up to payment in full, H plus the costs of the suit and incidentals thereto.

As for the defendant, through his advocate Mr Matata, the Written Statement of Defence contains general denials save for the for- I

A mal admissions at some of the paragraphs of the plaint. With regard to the denials, the defendant strongly refuted that his servants were negligent as alleged at para 5 of the plaint (see para 6 of the WSD) and requires the plaintiff to prove the allegation as required by the law. He also refuted the allegation contained at para 8 of the plaint, that avers that the plaintiff's several demands to the defendant B for compensation were ignored and or refused by the defendant, to the effect that the defendant's offer to purchase the mixed up products at costs price was turned down by the plaintiff.

C Besides the denials by the defendant, a counter claim has been raised by the defendant as follows: that, upon the refusal by the plaintiff to take possession of the delivered products the

defendant transported the same to Mwanza BP Service Station where the M/Vehicle tanker was grounded from 14th day up to 24th of August, 1994. Thereafter the contents were emptied into an underground tank. Thus, the defendant prays for the following orders: D

(1) Shs 100 000/= per day for the loss of use of the tanker as per para 11 (ie the immediate averment above);

(2) Shs 15 000/= per day for the non-use of the underground tank at the defendant's service station from the 25 August 1994 until the date the E plaintiff takes delivery of the disputed petroleum products;

(3) Shs 90 000/= being the transport charges of the product from Mwanza BP depot to the plaintiff's BP service station at Musoma. F

(4) General damages of Shs 5,000,000/= for breach of contract.

(5) Costs of the suit.

Although the plaintiff, through his advocate, indicated in his reply to the WSD that he would raise a preliminary point of law to the effect that the defendant's G counter-claim do not have any cause of action against the plaintiff, as no delivery remained with the plaintiff after the mixing up, at the hearing, however Mr Magafu apparently made no reference to it. It is apparent, therefore, he tacitly abandoned the contention and I have no reason to refer to that preliminary objection which was never argued. H

Only as a matter of record, it is also to be observed, though not important, that before the hearing of the suit the parties under went mediation process before another judge but they failed to settle. Therefore the suit had to be heard in full.

Issues were drawn and agreed as follows: I

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MREMA J

(1) Who was negligent between the parties? A

(2) Who of the parties breached the contract?

(3) Consequent upon the breach of the contract, who between the parties suffered damages?

(4) What relief, if any, are the parties entitled to?

In answering the above questions, no solutions can be made without resorting to B evidence. Once the first issue is answered, it is easier to find out who breached the contract. I therefore, begin with that most difficult question, ie the first question.

The plaintiff's case is that no sooner had the defendant's lorry-tanker reached the C Musoma Service Station than its driver, Latiff, parked it at the station and went away. He left the turnboy there. As we have seen in the evidence, the turnboy was Baltazar Mtwale (DW2). According to Mussetti (PW1), he (Mussetti) was present together with his pump attendant, Tabu (PW3). He and Tabu climbed on to the D tanker and took measurements of the contents in the tanker's chambers using a measuring rod-stick. That they also took samples to examine the quality of the fuel products. He confirmed that both the quality and quantity answered the description of the petroleum products he had ordered. Then they (PW1 and PW3), according E to Mussetti, showed the turnboy the sign boards identifying the various tanks -- for petrol, diesel and

kerosene. DW2 was then left to proceed to discharge the liquid products from their respective chambers into the respective underground tanks at the station. PW1, did not, however, tell the court where he went thereafter, F although we shall soon hear that he was called by PW3 (Tabu) from his office when the problem arose. As for Tabu, PW1 said that she continued to serve the public (customers). The rest of the evidence is as told by Tabu (PW3), beginning where a customer was sold diesel and when his motor bicycle failed to have his engine propelled. It was this alleged customer who caused investigation to be G carried out by PW1 and PW3 only to discover that petrol had been mixed up into the diesel underground tank, and diesel emptied into petrol underground tank.

Both prosecution witnesses (PW1 and PW3) claimed that the driver (Latiff), upon H interrogation as why that happened, admitted to the effect that he (the driver) had failed to detail the turnboy about the change when the loading of the goods was done at the BP Depot Mwanza South. That the change was that, this time as opposed to normal practice, the last two chambers of the tanker were loaded with petrol and the first chamber with diesel. The I

A court was further told by PW1 that in order to create evidence he (Mussetti) took the driver to the police. There, according to PW1 and PW3, Latiff repeated the same story, confessing his negligence and undertook to return the spoilt goods, seven thousand five hundred litres to his boss in Mwanza. Thus, according to the two witness's story, the turnboy put in writing (see exh P1), but I think it is better to reproduce the contents thereof, and I quote: B

`7 500 litres of Diesel Reg P zikiwa mchanganyiko zimerudishwa na transporter gari No TZ 45524 Blue Star Station Mwanza. Yaliyochanganywa na wao wenyewe.' C

But before I proceed with the evidence of PW1 and PW3, I propose to deal with the contentions raised by the parties concerning exh P1 first. PW1 admitted that the words `yaliyochanganywa na wao wenyewe' do not appear in the copy attached to the plaint. One may, therefore be astounded to note that the same D photostatic copy attached with the plaint which was in the possession of the plaintiff did not bear the latter quoted words as did the original copy which was also in the hands of the plaintiff. This means, therefore, that PW1 produced two documents which talk two different things. The consequences resulting from such E contradictions are that PW1 is a liar as far as both the documents are concerned. The defendant apparently is not disputing the photostatic copy which do not bear the last words in dispute. PW1 tried to convince me to believe that the F omission of the disputed words might have been occasioned by a carbon paper, in that the words did not pass through the carbon ribbon to reflect on the second copy of the original. At times that does happen but the situation as it is apparent from the facts of the case is not one adopting such a proposition. I do not agree with the plaintiff because had he not produced the copy which he attached to the G plaint I might have agreed with him. For it was not possible for him to extract the copy without the original, and that being the case it was impossible to have the same document reading two different things. The plaintiff knows why and I say no more. But I will not reject both the documents because the defence is not disputing H the copy attached to the plaint. I therefore adopt its contents as being exactly

what Latiff wrote but through the handwriting of Maiga, the defendant's driver, and signed by Latiff. That is without the words: `Yaliyochanganywa na wao wenyewe.' Having said that, I return to the evidence of PW1 and PW3. Again, I do not agree with PW1 that the one thousand five hundred litres not returned to DW1 was due to the fact that they failed to I

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MREMA J

syphon them out of the underground tanks. DW2 told the court that, that amount of A quantity was emptied into an underground tank which had not been contaminated. This piece of evidence was not disturbed by the plaintiff and, in my view, that evidence appears more probable than untrue because there is no explanation why PW1 did not complain against the one thousand five hundred B litres. I find PW1 to be a liar the second time when he told us that the one thousand five hundred litres were removed by the BP Tanzania officials when they went to service the tanks. The products were not waste products and that explains why PW1 did not return them or complain against the value thereof. On the C premise, therefore, one may reasonable say that the defendant did execute part of the contract by delivering part of the goods he contracted to carry and deliver at PW's service station. The plaintiff having accepted part of the goods, that portion in itself was complete save for payment of the cost of delivery which the defendant is entitled to sue and recover the costs relevant to the amount of goods delivered. D However, the amount of petroleum products carried for delivery to the plaintiff by the defendant is not an issue before me and I have no reason to labour my mind on it. We are concerned with the seven thousand five hundred mixed up litres of petrol and diesel.

The question as who was negligent still remains unanswered. I agree, with E respect, on the contradictions pointed out by Mr Matata touching the evidence of PW1 and PW3. I agree that PW1 was most unlikely present at the station when the lorry tanker arrived there. The story he gave appears to be a narration from PW3. If he was present as he claimed I do not see why he could not have seen F either the turnboy or the driver delivering the disputed goods into wrong underground tanks. He was not present at the station but perhaps he was in the office and that is why PW1 went to call him when the mess occurred. As PW1 does not appear to be a credible witness, I will, therefore, attach no weight in his evidence. I am therefore left with the evidence of PW3 and DW2, indeed at the scene. G

Mtwale (DW2), on behalf of the defendant, gave a diametrically opposite story against that of Tabu (PW3). He told the court that when they reached PW1's service station on 14 August 1994 they found PW3 alone, PW1 was not present. H That PW3 allowed them to off load the goods but this was after confirmation as to the correctness of quantity and quality of the goods was affirmed by Tabu (PW3). The driver of the lorry-tanker was present throughout, according to DW2. This defence witness claimed that it was only him (DW2) who went out to eat when the delivery of the goods was I

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MREMA J

A continuing in the presence of the driver Latiff. But that before DW2 went out they started delivering diesel and later petrol. He further claimed that Latiff had told him that the first

chamber/compartment of the tanker was loaded with diesel and the two last chambers with petrol. So, it is claimed, they emptied the diesel into the underground tank which Tabu (PW3) was claimed to have told them that was for B diesel but later turned out to be for petrol when a customer complained. However, DW2 admitted that he did not go to the police with PW1's employee, Mr Mafuru, who had new arrived from Mwanza. He said, those who went were Latiff, PW3 and Mafuru. It follows, therefore, that what transpired there (at the police) C was not to the knowledge of DW2. But Latiff was not called to tell us who were those people present at the police station when Latiff signed exh P1. As DW2 did not go to the police station he cannot confirm to us that PW1 never went to the police station. Therefore, what actuated Latiff to agree to syphon out the spoilt D seven thousand five hundred litres of petroleum products and return the same to the lorry tanker and ferried it back to Mwanza, this remains a question not answered by the defendant. In that connection the only evidence present is that of PW3 who also went to the police station. Although PW3 was PW1's employee, I can see nothing from the circumstances of the case discrediting her evidence E because Latiff signed a voucher exhibit P1 confirming that the seven thousand five hundred litres were mixed up and were being returned to Mwanza, which was done. The question then, is, why Latiff if not guilty party, acted the way he did? If he was innocent, I can conceive nothing either legal or factual to justify the return of the mixed up petroleum products to the defendant in Mwanza. F

The defendant's main defence is that the delivery was in accordance with Tabu's identification of the underground tanks to Latiff and DW2. That sounds a good defence. But, then what prompted Latiff to return the goods? The court received no G evidence proving undue influence on the part of the driver. If the driver was unduly influenced at the police station thereby causing him to act the way he did I would have found it good defence for the defendant. But there is no such evidence. Again, if the story as told by DW2 had any grain of truth, I wonder why Nurdin H (DW1) did not immediately take steps, either to return the goods to PW1 or to sue him for refusal to accept delivery and possession of the goods as per their agreement. To say it differently, he would have sued PW1 for damages for breach of contract. As if there was no breach of contract by the plaintiff, DW1 (Nurdin) accepted the returned goods and I

kept them at his Blue Star Service Station from 15 August 1994 to 24 August 1994. A I say 15 August 1994 because DW2 affirmed in evidence that after the problem had arisen on 14 August 1994 at Musoma, they slept there and returned to Mwanza on the following day, ie 15 August 1994. Even after 24 August 1994 we have DW2's evidence, and also corroborated by DW1, to the effect that the mixed B up products were then discharged into an underground tank at DW1's Blue Star Service Station for storage for thirty days. However, I observe that DW2 made an incorrect statement, if not a lie, when he said that the disputed seven thousand five hundred litres remained in the lorry tanker for thirty days and that he slept in the lorry tanker for thirty days. This statement goes counter DW1's statement who C said that the products remained in

the tanker from 14 August 1994 to 24 August 1994 inclusive before it was emptied into an underground tank.

Be that as it may, however, the significance of DW1's acceptance of the refused D goods by PW1 was ratification of PW1's complaint that DW1's servants, workers or employees negligently delivered the disputed products in wrong tanks underground at PW1's service station, Musoma. And to further affirm DW1's conduct implying that he had accepted the liability he remained quiet until PW1, E through Dr Lamwai, wrote the demand notice (dated 20 September 1994) for compensation as already stated briefly above. The incident took place on 14 August 1994 and until 26 September 1994 when DW1 responded (exh P3), indeed after being alerted, and that was a period of one month plus. Notwithstanding the F denials and counter claims raised in exh P3, the defendant appeared to admit liability and this is affirmed by the offer he made at the last paragraph of the letter, the salient words which read, quoting them ipsissima verba, as follows:

`Without prejudice to the right (sic) to the aforementioned compensation our client offers to pay G for the said 7 500 litres of diesel at cost price by monthly instalments of Shs 100 000/=.'

In sum, considering the fact that the key witness for defence, one Latiff, was not H called to give evidence, coupled with the conduct of the defendant, Nurdin, after the mess up and the return of the goods to him by PW1, all is nothing but a highly probable inference that what Tabu Athumani (PW3) told this court was nothing but the truth. While the law requires that whoever asserts in a civil litigation must be capable to prove his/her assertion on the reasonable acceptance of evidence, cum on the reasonable balance of probabil- I

A ity, the same burden is not relieved of the defendant to offer evidence in rebuttal, also on the preponderance of evidence. I am, therefore, satisfied that Tabu (PW3) gave plausible and probable evidence worth to believe and I accept it. In those circumstances, as I have endeavored to lucidate herein above, I am in full agreement with the learned advocate for the plaintiff that the defendant's servants were negligent. This answers the first question. B

The next question is who of the parties breached the contract?

Mr Matata, learned advocate for the defendant, in his written submissions, contended that the evidence adduced shows that the defendant's explanation of the occurrence that resulted into the mixing up of the fuel is more probable one C than that of the plaintiff. With respect, this I have ruled was not the case. He further submitted that in returning the fuel to the defendant without payment plaintiff is in breach of the contract for hiring the tanker TZ 45524 on the account that the D defendant performed his part of the contract to transport the fuel from BP (T) depot in Mwanza to the plaintiff's petrol service station at Musoma. Indeed, with respect, I find this to be an incorrect proposition because for a contract to be complete the offer by DW1 to transport PW1's goods must also be accepted by E PW1 if the delivery is as agreed by the parties. But that was not so in this case and that explains why PW1 refused to accept the delivery the way he did. Mr Magafu, learned counsel for the plaintiff submitted that the

defendant's counter claim has no merit because all the problems were caused by the negligence of the defendant's employees. He brushed aside the contention by his adversary on the F issue of contributory negligence on the part of his client (the plaintiff). Instead, he suggested that it was the defendant who breached the contract because of the negligence of his employees, as they failed to take all necessary precautions at the time of off-loading the products. Thus, he said, the defendant is liable for G breach of contract for failure to exercise due diligence and thereby caused the plaintiff to suffer damage. I respectfully commend both the advocates for their industrious efforts they laboured on to assist this court to reach a just and logical conclusion in this matter. On my part I have not remained idle. I have examined not only the evidence but also every aspect of contention raised by each one of them. H

For any performance of a contract each party to the contract owes a duty to the other. Just like a seller has a duty to deliver the goods, and the buyer to accept and pay for them, in accordance with the contract of sale (as spelt out by s 29 of the Sale of Goods I

Ordinance), so is a transporter or carrier having the obligation to transport and A deliver the goods to the buyer thereof or the hirer of the motor vehicle, and the latter has a correlative duty to accept the goods and pay for transportation charges. It is crystal clear, therefore, that, unless otherwise agreed, delivery of the goods and payment of the price are concurrent conditions; the seller or transporter B must be ready and willing to give possession of the goods to the buyer in exchange for the price, and the buyer (also hirer) must be ready and willing to pay the price in exchange for possession of the goods (see s 30 of Sale of Goods Ordinance Cap 214). In the instant case we have no doubt that the plaintiff hired C the defendant's motor vehicle to transport and deliver the goods he had purchased from a third party (BP (T) Ltd) for a price, and there is no doubt as well that the defendant agreed to transport and deliver the very goods the plaintiff had purchased from a third person to the plaintiff. The latter would have executed his D obligation if he paid the price money he had agreed to pay the defendant. But this did not happen because the defendant did not deliver to the plaintiffs's possession the 9 000 litres of petroleum products as agreed between the parties for a price of Shs 120 000/= at delivery. It is no longer in dispute that the defendant E delivered to the plaintiff only one thousand five hundred litres of saleable fuel products which was less that the agreed quantity, that is nine thousand litres, hence seven thousand five hundred litres less. Even under the Sale of Goods Ordinance, Cap 214 s 32(1) stipulates that where the seller delivers to the buyer a F quantity of goods less than contracted to sell, the buyer in accepting the goods so delivered must pay for them at the contract rate. Our instant case is analogous to an occurrence of a situation relevant under s 32(3) which says:

> `Where the seller delivers to buyer the goods he contracted to sell mixed with goods of a G different description not included in the contract, the buyer may accept the goods which are in accordance with the contract and reject the rest, or he may reject the whole.'

The plaintiff in this case rejected the seven thousand five hundred litres of H petroleum products which the defendant's employees negligently mixed petrol and diesel, an act that

pierced the fundamental root of the contract. It was not the intention of the plaintiff to be delivered to his possession mixtures of petrol and diesel, nor had the defendant offered to so do. The fundamental term of the contract was for the defendant to deliver petrol and diesel in their natural I

A chemical form as delivered from the BP Depot. Therefore, when the defendant delivered to the plaintiff mixtures of petrol and diesel he committed a breach of an express term which entitled the plaintiff to reject the products so delivered. By refusing to accept the goods it did not mean that the plaintiff repudiated the contract. He refused to accept the goods and pay for their transportation and B waited to see the defendant fulfilling his obligation. In the case of RF Mboya v Mewa Mangata (1) although the facts were not the same as the ones in the present case. Platt J was discussing a similar situation involving the rule of acceptance in the law of contract and had the following to say, inter alia: C

`Assuming arguendo that the failure to deliver a workable vehicle constituted a breach going to the root of the contract, for the defendants to rely on that breach as a justification for their own non-performance, they should have refused delivery of the vehicle upon learning of the breach. Having retained the vehicle, the defendants have converted what might have been a breach of D a condition ... and their only remedy is by way of damages caused by the unsatisfactory state of vehicle' . . . also adopting the same view in The National Cash Register Ltd v Stanley [1921] 3 KB 292.'

E Adopting the above proposition, which I respectfully do, in the instant case, what the defendant would have done was to return the goods to the plaintiff if he had believed Latiff's story that the mess up at the plaintiff's petrol service station was due to negligence of the plaintiff's employees. As I have already said above the F defendant did not do that because that story of negligence on the part of the plaintiff's employees never existed. I am more inclined to a factual reflection that the story given by Nurdin (DW1) and his employee Baltazar (DW2) is nothing but an afterthought, it being framed up aimed to exculpate the defendant from the G blame and liability. The defendant's act to continue to store the goods up to 26 September 1994 when they reacted to the plaintiff's advocate's demand notice, which notice was a demand to the defendant to comply with the terms of contract, was, in my view, another manifestation, indeed clear to the eye and mind, that the H defendant continued to hold the contract alive. He then breached it on 26 September 1994 when his advocate Mr Matata wrote to the plaintiff's advocate, Dr Lamwai, disclaiming negligence and liability. The plaintiff was therefore entitled to sue for breach of contract and damage arising therefrom. A similar view was reached in an English case, Frost v Knight (2) at 112, and the rule set out in 8 Hals- I

bury's Laws of England, 3rd ed, p 203, para 344 which reads: A

`The repudiation of the contract by one party does not of itself discharge the contract but the other party has the option of treating the contract as at an end, or of waiting until the time

of performance has arrived, before making any claim for breach of contract ... If he elects to wait, he remains liable to perform his part of the contract, and enables the party in default not only to perform his part of the contract notwithstanding his previous repudiation of it, but to take B advantage of any supervening circumstances which would justify him in declining to perform it.' C

The above proposition (cited) was also followed in Tin Containers Ltd v Kencon (3). As G H L Fridman said in his book Sale of Goods at pp 221 and 222 the meaning of acceptance involves duty to accept and take possession, just as the duty to deliver is concerned with giving possession of the goods, say to the buyer. This common law rule was codified in English statute, ie the Sale of Goods Act, D 1893, and adopted in the Tanzanian Statute, see s 37 of the Sale of Goods Ordinance; which provides:

`37. The buyer is deemed to have accepted the goods when he intimates to the seller that he E has accepted them or when the goods have been delivered to him, and he does any act in relation to them which is inconsistent with the ownership of the seller, or when, after the lapse of reasonable time, he retains the goods without intimating to the seller that he has rejected them.'

Let it not be misunderstood, however, that the law applicable in the instant matter F are the provisions of the Sale of Goods Ordinance Cap 214. If any provision thereto has been quoted in this judgment, this has only been so done for the purpose of lucidating any point in controversy, and also simply because the G provisions of the Ordinance have `hand and glove' relationship with the law of contract. The provisions of the Sale of Goods Ordinance would have been very much relevant here if the delivery of the goods under discussion were to be delivered by M/S BP (T) Ltd who were the seller of the products to the plaintiff. Now, can it be said that the defendant was an agent of M/S BP (T) Ltd? But what H ever was the case, the principle applicable is the same. The difference in this case is that the plaintiff is no longer bound to pay the purchase price of the goods to the defendant because that price was paid to M/S BP (T) Ltd. In a way, therefore, in my view, the position of the I

A defendant in this case was not different from that of a bailee who had nothing to do with ownership of the goods but possession thereof. Possession would pass away from him to the buyer or owner as soon as both possession and property (in terms of ownership) is wholly transferred to the buyer or owner. This is not what happened in this case. B

From the foregoing reasons and on the strength of the few authorities I have adopted and relied on I am satisfied that the defendant breached the contract thereby entitling the plaintiff to sue for damages. The law as to payment of price for delivery of goods still stands -- as per the common law principle; therefore the C buyer must be ready and willing to pay the price in exchange, as for instance, for the transportation of goods. The plaintiff in this case has been complained of by the defendant for not having paid the price for the delivery of the goods to the plaintiff. But since possession must go together with acceptance of the goods the D plaintiff was not legally bound to pay for the transportation of the goods as the latter were not accepted

by him for the reasons already stated above. He is not, therefore, blamable for not paying the transport charges to the defendant who was as yet to deliver the goods to him. He is therefore exonerated from the blame and the defendant is not entitled to any damages -- as no breach was committed by the plaintiff. This terminates the second issue. E

After disposing of the two questions above the third question is no longer difficult. It goes without saying that the party who suffered loss or damages was the plaintiff. But I am not intending to say that the defendant did not suffer any damages or F loss. Indeed he incurred loss when his lorry travelled to Musoma from Mwanza to deliver the said goods. Apart from costs spent to fuel the lorry tanker from Mwanza to Musoma the defendant was also expecting to get some profit from the price G agreed between him and the plaintiff, though controversial in evidence whether it was Shs 120 000/= or Shs 90 000/= single journey. Both the journeys, since the lorry had to return the rejected goods the price would have been either Shs 180 000/= or Shs 240 000/=. The defendant must have also paid allowances and H wages to the driver and turn-boy. But all these losses are not consequent to the plaintiff's negligence but to the defendant's employees, hence the maxim Volent none fit injuria. The defendant therefore carries injuries of his own making or mistakes. In sum the plaintiff suffered bona fide losses by no fault of his own and must be compensated by the party at fault. I say no more on the third issue, and I move to I

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consider the last but not unimportant issue. A

Having held that the plaintiff deserves compensation, the question that follows is what quantum? Each case depends on the facts and circumstances. For instance in one English case: Thompson v Robinson (Gunmakers) Ltd (4), the defendant refused to accept delivery of a `Vanguard' car which they had contracted to buy B from the plaintiffs. The plaintiff returned the car to the supplier who took it back free from any claim for damages. The plaintiffs claimed as damages their loss of profit. The defendants said that the plaintiffs had suffered no loss of profit and the damages should be nominal. It was admitted that there was no shortage of `Vanguard' cars to meet all immediate demands in the locality. It was held by C Upjohn, J that the plaintiff's loss was the loss of their bargain and they were entitled to recover the loss of profit. And in Charter v Sullivan (5), the facts were similar to those in Thompson (supra) except that the car was a `Hillman' and the plaintiff could sell all the Hillman cars that he could get. The Court of Appeal held D that the plaintiff was entitled only to nominal damages, for he had shown no `loss directly and naturally resulting from the defendant's breach of contract'. This principle was enunciated a long time ago in England, in the case of Hadley v Baxendale (6), Alderson B delivering the judgment of the court, the substance of which reads as follows: E

> `Now we think the proper rule in such a case as the present is this: Where two parties have made a contract which one of them had broken, the damages which the other party ought to receive in respect of such breach of contract should be such as may fairly and reasonably be F considered either arising naturally, ie according to the usual course of things, from such breach of contract itself, or such as may reasonably be supposed to have been in the contemplation of both the parties, at the time they made the contract, as the probable result of

the breach of it. Now, if the special circumstances under which the contract was actually made were communicated to the defendants by the plaintiffs, and thus known to both parties, the G damages resulting from the breach of such a contract, which they would reasonably contemplate, would be the amount of injury which would ordinarily follow from a breach of contract under the special circumstances so known and communicated ...' H

The court further stated that, `on the other hand, if these special circumstances were wholly unknown to the party breaking the contract, he, at the most, could only be supposed to have had in his contemplation the amount of injury which would arise generally'. I

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A Mnzavas J (as he then was), in considering a similar situation involving remoteness of damages and measure of damages in Nhuvya s/o Subajiwa v Jackson s/o Chilewa (7) followed, with approval, that principle in Hadley (supra) which to date is still good law.

Applying the above cited rule in the present case, the question is whether from the B facts of the case we can infer special circumstances which were wholly unknown to the party breaking the contract, namely, the defendant? The plaintiff claimed that he suffered damages or loss as the result of termination of his agency with BP (T) Ltd when the Western Branch Manager, one Mr Njau, served on him (plaintiff) a letter dated Monday, 24 October 1994, terminating his C dealership at BP Musoma Service Station as per exh P2. Such a circumstance, in my view, would not have been contemplated by the defendant when agreeing to transport and deliver the said goods to the plaintiff, that the plaintiff's agency would be terminated. It is a circumstance which is by far quite remote from the original D intentions of the parties and as such it would be absurd, if not unjust to direct such remoteness of damages against the defendant. As already stated above the defendant (DW1) repudiated the contract on 26 September 1994 and this means, E in my view, the loss in profit incurred by the plaintiff as the result of the breach is measured between the date of delivery was supposed to take place and the date of repudiation of the contract, which was 14 August 1994 and 26 September 1994. That was a period of forty two days.

It has been submitted, in evidence, that the plaintiff suffered loss of profits for a F continuous period of eight months. As was stated in Roth & Co v Tayson, Townsed & Co (8), and followed in the judgment of Dunkirk Colliery Co v Lever (9), per James, LJ, that the standard required of the injured party in the mitigation of damages is to ensure that he does not act unreasonably. The plaintiff, after the defendant repudiated the contract on 26 September 1994, decided to exercise the G option of accepting that repudiation and then proceeded to sue for breach of the contract. If he (PW1) chose to disregard to refuse to accept it then it would mean that the contract remained in full effect and the position might have been different. In a situation like the latter example it was observed in White & Carter (Councils) Ltd v McGregor (10) that the injured party has no duty to mitigate. In the light of many authorities I have read I am not in the inclination to accept the proposition by H the plaintiff that he is entitled to be compensated loss of profits for a period of eight months. The reason why his service station was out of rendering services to the members of the public for the period of I

eight months, as put and proposed by the plaintiff, is partly because of the refusal A by the BP (T) Ltd to service the contaminated underground tanks at the plaintiff's station and partly because the plaintiff's dealership was withdrawn by the proprietor of the Musoma Service Station, namely, BP (T) Ltd on 24 October 1994 (see exh P2). The non-service of the tanks was not anything to be contemplated in B the contract of the parties, and if any breach of contract was committed as the result of terminating PW1's agency the consequences thereof would not have affected the defendant. The plaintiff was not less required to do than what Scrutoon LJ, said in concurrence with the views of McCardie, J in Payzu Ltd v Saunders (11), that, and I quote: C

`I am of the same opinion. Whether it be more correct to say that a plaintiff must minimise his damages, or to say that he can recover no more than he would have suffered if he acted reasonably because any further damages do not reasonably arise from the defendant's breach, the result is the same ... Mr Mathews has contended that in considering what steps D should be taken to mitigate the damage all contractual relations with the party must be excluded. That is contrary to my experience. In certain cases of personal service it may be unreasonable to expect a plaintiff to consider an offer from the other party who has grossly injured him; but in commercial contracts it is generally reasonable to accept an offer from the E party in default. However, it is always a question of fact. About the law there is no difficulty.'

In the instant case, it has been contended on behalf of the defendant that the F plaintiff unreasonably refused to accept the offer by the defendant to pay or purchase the mixed up products at cost price. But, in my inclined view, I think that the plaintiff in deciding whether to accept the defendant's offer would greatly depend upon consideration as to the terms in which the offer was made, its bona G fides or otherwise, its relation to their own business method and financial position, and all the circumstances of the case. And, after all, I think that an acceptance of the offer would not preclude an action for damages for the actual loss sustained. In other words, the plaintiff could have accepted the offer to receive Shs 100 000/= by instalments per month until the whole amount of Shs H 2,000,000/= plus is paid off but that would not operate as a bar against the plaintiff to sue for other damages denied by the defendant. So, it seems right, therefore, to suggest that the plaintiff was entitled to take the first course as he did to claim for full damages, or he could have taken the latter proposed course and then taken action to I

A recover the balance. For this reason I find the defendant's argument, that is on the aspect of the plaintiff's refusal to accept the offer of payment by instalment at the rate of Shs 100 000/=, as not maintainable because the offer was apparently individualistic with inconsiderate self centred interest.

B What amount in terms of profit then did the plaintiff lose for a period of 42 days? It is the plaintiff's case that for the period his service station remained partially operative, only kerosene was selling, he was incurring a loss of Shs 30 000/= profit margin per day. That is, the Shs 30

000/= profit margin is exclusive of all other considerations as to costs and incidentals. Although such claim falls under C special damages and ought to be strictly proved, particularly by production of receipts, however, I tend to rely on the evidence of PW1 and Tabu (PW3) that the sales of fuel products at the station was two thousand litres plus. PW1 further said that one litre of petrol, without specifying whether it was super or regular, cost Shs D 210/= as purchase price and Shs 228/90= selling price at the material time. This was not disputed by the opposite party. The difference between selling price and purchase price, is Shs 33/10. Suppose this was the profit realized from the sale of one litre of petrol regular, a sale of one thousand litres per day would realize Shs E 33 100/= profit. In normal circumstances it was possible that the plaintiff was able to sell not less than one thousand litres of petrol, be it regular or super, whose prices differ. Computing this figure of Shs 33 100/= as a day's profit from the sales F of one thousand litres by the number of the days the plaintiff incurred loss in profit, which I have found to be forty two days, it would mean that the plaintiff would have earned Shs 1,260,000/= as profit. But the plaintiff has requested compensation of Shs 242 250/= being loss of profit on the consignment. There is G no prayer for loss of profit incurred during the period the defendant had kept the contract alive before repudiating it. The law is that the injured party must be compensated for what he asked for in his pleadings. Under the circumstances I will not award more than the Shs 242 250/= he had pleaded, being loss of profit on the consignment. Accordingly I grant the prayer sought at para 6(a) and (b), that is H the loss of the consignment in the sum of Shs 2,185,000 and Shs 242 250/= loss of profit on the consignment, respectively, although he could have earned more on the loss of profit had this claim been pleaded and argued properly. Item 6(c) falls under special damages which ought to be strictly proved. Definitely the plaintiff might have incurred costs in pursuing the matter when the I

mess up occurred at his business place. As the plaintiff has not strictly proved the A claim I refuse to grant it under this sub-heading. However, I reserve the claim to be considered under the head of general damages.

I now move to consider prayer 9(b) of the plaint, the plaintiff has prayed for Shs 40,000,000/= as general damages. Rufus Isaac, King's Counsel, in submitting on B the question of damages in a suit for defamatory libel against the plaintiff; in E Hulton and Co v Jones (12), contended that aggravated damages should not be assessed in the light of the negligent part only but also upon proof of evidence of malice on the part of the defendant, an argument which I find to be good and C sound. It has been said in many judicial authorities in the Tanzanian Jurisdiction and elsewhere, that damages for breach of contract must be in the nature of compensation not punishment, and that the general rule applicable to such cases was as in effect stated by Cockburn CJ in Engel v Fitch at 330 and I respectfully quote the salient words, which are: D

`By the law of England as a general rule a vendor who from whatever cause fails to perform his contract is bound; as was said by Lord Wensleydale in the case relevant, to place the purchaser, so far as money will do it, in the position he would have been performed. If a man E sells a cargo of goods not yet to come to hand, but which he believes to have been consigned to

him from abroad, and the goods fail to arrive, it will be no answer to the intended purchaser to say that a third party who had engaged to consign the goods to the seller had deceived or disappointed him. The purchaser will be entitled to the difference between the contract price and the market price.' F

But there is more than that in the instant case. The goods were not delivered to the plaintiffs only but also the defendant's employees did worse than good to the plaintiff through their unchallenged negligent act. By contaminating the plaintiff's G underground tanks through mixing petrol and diesel made it impossible for the plaintiff to continue using the tanks commercially until they were serviced by the owners of the tanks -- M/S BP (T) Ltd. By regulation, as stated in evidence, the plaintiff could not take personal undertaking to service the tanks to enable him resume his business operation. We have been told in evidence that M/S BP (T) H Ltd became stubborn and were reluctant to perform their duties to put back the tanks into operational condition. It is not also in dispute that the plaintiff did not sit back to wait for a miracle to take place. He went as far as complaining to the Minister for Water and Energy, as it then was. It I

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A is the plaintiff's evidence that the clean up exercise of the tanks was done about April 1995, which is about a period of eight months from 18 August 1994 when the plaintiff rang and complained to one Saukiwa, one of the BP's sales officer at the depot, Mwanza South. This piece of evidence has not been contradicted by the defence. Even if we were to assume, arguendo, that the tanks B were serviced after a period of three months, still, definitely, the plaintiff would lose about Shs 1,800,000/= as profit at the rate of Shs 30 000/= per day, which amount I consider to be reasonable in the circumstance. Although the defendant claimed that the entire lot of seven thousand five hundred litres of spoilt petrol and C diesel mixtures were destroyed by emptying the same into the waters of the Lake Victoria, nevertheless, there has not been one iota of evidence vouching for the alleged destruction, except for the bare words of DW1 and DW2. Both the law D and equity put me to an inclination that the plaintiff deserves some compensation resulting from the tortures which inflicted his anguish of mind while moving up and down to insist on the proprietors of the Musoma Service Station to make good the damage caused to the underground tanks caused by the E defendant's employees' negligence. Indeed, I have no doubt, the plaintiff was already in possession of business goodwill and ostensibly, I believe, he had established business relationships with at least few customers who were making use of his petrol service station. When this problem arose definitely some of those `permanent' customers must have lost that goodwill already established with the F plaintiff and therefore changed their minds and moved to other service stations they considered to be more reliable and reputable. On the premise I am lured to accepting the plaintiff's proposition that as a result of the mess up consequent upon the defendant's negligence, his business reputation was perceived G negatively. For the foregoing reasons I can conceive nothing better in the circumstances than ordering the defendant to compensate the plaintiff (PW1) the damage he suffered, and for this I decree a sum of Shs 1,800,000/= as general damages.

H Also I allow the plaintiff's prayer 9(c) to the effect that the defendant is condemned to pay interest on the decretal amount at the court's rate from the date of judgment untill when payment is made in full. Costs to the plaintiff as against the defendant at para 9(d) of the plaint.
The plaintiff had stated at para 5(c) of the plaint that the plaintiff would seek to rely on the doctrine of res ipsa loquitor; it is strange, however, the plaintiff's counsel, Mr Magafu, did not seem I
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eager to draw to its attention (that legal defence) in his submission, although he A simply submitted that when a person fails to fulfil a duty to take care he is responsible for this act, even though he acts as a servant. He referred the court to an English case Yuille v B & B Fisheries (Leigh) Ltd and Bates (14). Mr Magafu B sent to us his written submission from Dar es Salaam. He did not attach to his written submission the substance of the decision in the case he cited and, on my part, with regret, I must confess that I have not had the opportunity to read the cited case because our library (at Mwanza) does not seem to be in possession of that case.
Be that as it may, I agree with the learned defendant's counsel that the doctrine of C res ipsa loquitur which the plaintiff sought to rely on applies to negligent liability cases in which, inter alia, there is no direct evidence as to why and how the occurrence, consequent upon negligence, took place, and therefore, leave the evidence adduced before the Court for the latter to draw reasonable inference D from the facts available and the circumstances therefrom and make deduction as what was the probable cause of the accident or occurrence. As stated in the Halsbury's Laws of England, 3rd ed, vol 28, para 81 at 79, that the maxim res ipsa E loquitur applies only where the causes of the accident are unknown but the inference of negligence is clear from the nature of the accident, and the defendant is therefore liable if he does not produce evidence to counter inference, and this proposition was discussed in McArthur v Dominion Cartridge Co (15). If the F causes are sufficiently known, the case ceases to be one where the facts speak for themselves and the court has to determine whether or not, from the known facts, negligence is to be inferred -- also see Barkway v South Wales Transport Co Ltd (16) House Lords at 394, per Lord Porter. In the East African situation, the G doctrine was considered, though motor accident cases, in Dewshi v Kuldp's Touring Co (17); Embu Public Road Services Ltd v Riimi (18); Msuri Muhhidn v Nazzor Bin Seif El Kassaby and Another (19); but to mention a few. The significance of the rule (doctrine) in all these cases is that a defendant can only be successful in relying on the doctrine if he can show or prove that there was no H negligence on his part which contributed to the occurrence (accident), or that there was a probable cause of the accident which did not connote negligence on his part, or the accident or occurrence was due to circumstances not within his control. It is on such facts or circumstances a Trial Judge or magistrate can make a finding of fact as whether a defendant has succeeded in establishing the facts which rebut the presumption of negligence on his part. Once the defen- I
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A dant's explanation is accepted as being true, the burden to prove that the defendant was negligent still remains on the plaintiff.

In the present case I am not eager to delve at lengths into the various cases in which the doctrine of res ipsa loquitur was discussed because I have already made a finding to the effect that it is the defendant who by necessary inference B from the evidence available tacitly admitted to have negligently mixed up petrol and diesel thereby contaminating the plaintiff's underground tanks. I rejected the defendant's evidence that it was the plaintiff's employee (PW3) who was negligent by showing DW2 and DW1's driver the wrong tanks and consequently resulted C into the emptying of the petrol and diesel into wrong underground tanks. Thus, having rejected the defendant's defence, it follows as day follows night that the defendant's counter claim abysmally fails. I dismiss the counter claim with costs to the plaintiff. In sum, the plaintiff's claim succeeds, but to the following extent as hereunder shown: D

(1) The claim of Shs 40,000,000/= as per para 9(b) of the plaint is reduced to Shs 1,800,000/=;

(2) the plaintiff to be compensated Shs 2,185,000/= being loss of the E consignment of seven thousand five hundred litres of petrol as prayed at para 6(b) of the plaint, and Shs 242 250/= loss of profit on the consignment, thus making a total of Shs 2,427,250/=;

(3) Interest on the decretal amount at the court's rate from the date of judgment till when payment is made in full, and F

(4) Costs to the plaintiff as against the defendant as prayed at para 9(d) of the plaint.

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NDESAMBURO v ATTORNEY GENERAL 1997 TLR 137 (HC) A

Court High Court of Tanzania - Dar es Salaam
Judge Msumi J

MISCELLANEOUS CIVIL CAUSE 12 OF 1995 B

Flynote

Rules of natural justice - Audi alteram partem - Revocation of land - Consideration of party's defence before making decision affecting party C

-Headnote

The applicant applied for the prerogative orders of certiorari and mandamus seeking to set aside a decision of the Minister of Lands and Housing revoking the right of occupancy of a certain erf. The applicant contended inter alia that the reasons which he had furnished had not been taken into consideration in deciding whether or not his right of occupation should be revoked. D

Held:

(i) The principle of natural justice which required that a person had to be afforded an opportunity to defend himself necessarily implied that the person determining the matter would

consider the party's defence before making a decision which affected the right of the party. Failure to consider such defence was as bad as not affording E the party the opportunity of a hearing;

(ii) The President had not considered the grounds given by the applicant before the right of occupancy was revoked. F

Case Information

Order accordingly.

Case referred to:

1. Agro Industries v Attorney-General [1994] TLR 43 (CA)

Mwidunda for the applicant. G

Muccadam for the respondent.

[zJDz]Judgment

Msumi J:

This is an application for the prerogative orders of certiorari and mandamus. H These orders are sought against the decision of the Minister for Lands and Housing in revoking the right of occupancy granted to the applicant on 1 April 1989 for plot No 3 at Ununio area, Kinondoni District. According to the submission of Mr Mwidunda, the learned State Attorney who advocated for the respondent the contentious revocation was effected by an order issued on 9 March 1995. For unknown reasons, however, respondent did not I

A make available to the court the said revocation order. And it appears applicant became aware of the said order by a notice published in a copy of Uhuru newspaper.

As procedurally required, the application is supported by the affidavit and B statement deposed by the applicant. Among other things, applicant asserted that at the time when the revocation was done he had partially developed the suit plot and had submitted plans to the then City Council for a building permit. In fact he contended that his application for a building permit had been pending for over two years.

C In response to the applicant's contentions, respondent filed a counter affidavit deposed by the Commissioner for Lands one Emil Temigunga Luyangi who generally disputed all the contentions and demanded the applicant to strictly prove them.

D To augment the affidavit and statement of the applicant, Mr Muccadam, advocate, submitted the following grounds. In order for a revocation order to be legally valid it must have been made on one or more of the grounds stipulated under s 10(1) of the Land Ordinance. The learned counsel respectfully argued that in the present case the purported revocation is not on any of these grounds. Secondly he submitted that it was not legally sufficient for the President to endorse E the word `Nakubali' in the minute sheet in which the Minister for lands made the proposal for the said revocation. To his understanding of the law the learned counsel was of the respectful view that there ought to have been executed an instrument signed under his seal. F

Thirdly he challenged the counter affidavit when it stated that the revocation was done by the Minister on behalf of the President. He contended that the law does not empower the President

to delegate this power. And lastly before the revocation order was issued applicant was not sufficiently notified of the President's intent to G do so and require him to show cause why that intent should not have been effected. For this reason, the learned counsel argued, his client was condemned unheard.

H In reply to the first argument, counsel for the respondent submitted that the revocation was done after the applicant had failed to develop the suit plot as stipulated in the condition for offer of the right of occupancy. On the second and third arguments, the learned counsel cited the decision of the Court of Appeal in Agro Industries Ltd v AG Civil Appeal (1) as an authority for his submission that the word `Nakubali' endorsed by the President in the minute sheet is a legally sufficient expression by the President that he has revoked the I

said right of occupancy. In other words there is no legal requirement that such A expression should have been in a form of an instrument signed by the President under his seal. Also relying on the same authority the learned counsel argued that the Minister for Lands and Housing acted properly when he signed the revocation order on behalf of the President. And lastly the learned counsel submitted that B applicant was sufficiently notified of the President's intent to revoke the suit right of occupancy for breach of development condition unless he showed cause why the same should not have been effected.

Let me first deal with the second and third grounds together. With respect I totally C agree with Mr Mwidunda's exposition of the law on the basis of the decision in the Agro Industries case, supra. The President is not required to execute a sealed instrument in order to render his revocation order legally sustainable. Similarly the Minister was not acting on the power delegated to him by the President. He was just executing the revocation order which had already been issued by the President. D

The issue raised in the first and fourth grounds are whether applicant was sufficiently notified of the intended revocation and the ground for it and secondly whether the President considered the reasons furnished by the applicant opposing E the intended revocation. As far as the first issue is concerned, I have no doubt in my mind that applicant was sufficiently notified and required to show cause why his right of occupancy should not have been revoked. However my answer to the second issue is on the negative. F

In is quite evident from the counter affidavit of the Commissioner for Lands that the reasons furnished by applicant were not considered in deciding whether or not the suit right of occupancy should have been revoked. In para 5 of his affidavit the applicant said: G

> `That I have partially developed the land and I have plans submitted to City Council for approval of my project on the land since March, 1992.'

And in support of this assertion application made available to the court and H respondent a cash receipt dated 15 March 1992 for Shs 840/= issued by the City Council in the name of the applicant in which it is clearly indicated that the said payment was for submission of the building plans in respect of plot 3 Ununio. Quite surprisingly the Commissioner for Lands in para 3 of his counter affidavit said: I

1997 TLR p140
MSUMI J
A `That the contents of para 4 and 5 of the affidavit are strongly denied and it is stated the applicant's right of occupancy was revoked lawfully and properly.'
It is obvious that the Commissioner did not understand what the applicant was B contending in the said paragraph of his affidavit or he decided to be evasive. This assessment is also applicable to the learned counsel for the respondent because in his reply to the submission of the applicant he said nothing on the argument raised by his colleague that the suit plot had been partially developed when it was recommended to the President for revocation. C
From what has transpired, I am of the respectful opinion that the President did not consider the grounds given by the applicant before the suit right of occupancy was revoked. This could have happened either the officers concerned did not furnish me with the said grounds or after being so furnished, the President decided not to D consider them. In my opinion the former possibility appears to be the most likely one. However the effect of either of the possibility is the same. It amounted to condemning of the applicant unheard. The principle of natural justice which requires a person to be afforded with opportunity to defend himself necessarily implies that the person determining the matter will consider the party's defence E before making a decision which affects the right of such party. Failure to consider such defence is as bad as not affording the party an opportunity of the right of hearing.
F For the aforementioned reasons it is held that the revocation order is bad in law for it was issued in contravention of the principles of natural justice in that the applicant was not given the right of hearing. This application is therefore granted with costs. The said revocation order is hereby quashed and it is directed that the right of occupancy of the applicant be restored. G
1997 TLR p141

TANZANIA POSTS & TELECOMMUNICATIONS CORPORATION v M/S B S HENRITA SUPPLIES 1997 TLR 141 (CA) A

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Lubuva JA B

CIVIL APPLICATION 14 OF 1997
12 May 1997
(An application for stay of execution from the decision of the High Court of Tanzania, Dar es Salaam, Kyando J) C
Flynote
Civil Practice and Procedure - Appeal - Stay of execution pending appeal - When granted
-Headnote

The applicant applied for an order to stay the execution of a judgment granted D against it pending an appeal. The applicant contended that if it were not granted the applicant would suffer great loss and damage as the amount involved was great and would cause its business to come to a standstill. It was contended further that the chances of success on appeal were high. The respondent opposed the application and contended that they were in a sound financial position E and would be able to pay in the event of the appeal going against them. The respondent denied that the prospects on appeal favoured the applicant.

Held:

(i) The fact that the amount of loss and damage the applicant was likely to F sustain if no stay order was granted was not a sufficient reason for the granting of an order: the decretal amount, if paid, was capable of being paid by the respondent. The submission that if a stay order was not granted the applicant, a large public corporation, would suffer such irreparable loss that it was incapable of being being atoned by way of damages, was unacceptable; G

(ii) The chances of success of an intended appeal, though a relevant factor in certain situations, could only be meaningfully be assessed later on appeal after hearing arguments from both sides. This was a general principle which was not without exception;

(iii) The circumstances of the present case were such that even H though the loss and damage that the applicant was likely to sustain if stay of execution were not granted could be atoned by way of damages, there were still lingering doubts whether a stay was not warranted on account of other factors: the prospects of appeal and the balance of convenience. The Court accordingly decided to exercise its discretionary powers under Rule 9(2)(b) and granted a stay subject to the condition that the applicant deposit the decretal amount in court. I

1997 TLR p142

LUBUVA JA

Case Information

A Order accordingly.

Cases referred to:

1. Tanzania Cotton Marketing Board v Cogecot Cotton Co SA [1997] TLR 63
2. Transport Equipment Ltd v Reginald John Nolan Civil Applicaiton No 19 of 1993 (unreported) B
3. Joseph K Mlay v Ahmed Mohamed Civil Application No 39 of 1995 (unreported)
4. Winchester Cigarette Machinery Ltd v Payne and Anor (No 2) Times Law Reports, 15 December 1993

Mrs Gama for the applicant. C

Maira for the respondent.

[zJDz]Judgment

Lubuva JA:

This is an application for stay of execution. It is filed under Rule 9(2)(b) of the D Court's rules. The applicant is seeking an order from this Court that the execution of the High Court decision in Civil Case No 283 of 1988 dated 4 February 1997 be stayed pending the determination of the intended appeal in respect of which a notice of appeal has been filed.

Before the High Court, the respondent in this application had filed a suit against the E applicant, Tanzania Posts and Telecommunications Corporation. The suit was fixed for hearing on 20 May 1994 when the respondent failed to appear in court. As a result, an order was issued granting the respondent leave to prove the suit ex-parte. The applicant filed an application for setting aside the order of 20 May F 1994 for ex-parte proof. On 4 February 1997 the High Court (Kyando, J) held that the applicant had failed to show good cause for the failure to appear before the court on 20 May 1994. The application was dismissed. In the same proceedings judgment was entered for the respondent on the basis of the affidavit filed by the G respondent for ex-parte proof. That decision (4 February 1997) is the subject of this application.

The application is supported by an affidavit deposed by one M C Ndunguru, a legal officer with the applicant corporation. In the affidavit it is deposed that if stay of H execution is not granted the applicant will suffer great loss and damage as the amount involved is very big which would cause the applicant's business to come to a standstill. Mrs Gama, learned Counsel from the Tanzania Legal Corporation appeared for the applicant. In her submission she urged two points. First that if the execution takes place the applicant would suffer an irreparable loss and damage. As the amount I

involved is a large sum of money, the business of the applicant would be so A affected that it would be brought to a stand still, she insisted. Secondly, that the intended appeal has great chance of success because, she said, the decision of the High Court of 4 February 1997 raises fundamental legal issues. For these reasons, she urged the Court to exercise its discretionary powers under Rule 9(2)(b) of the Court's Rules, 1979. B

Opposing the application, Mr Maira, learned counsel represented the respondent. He advanced the following reasons for opposing the application: that there was no merit in the application because, apart from asserting that the amount involved is large and that if execution takes place, the business of the applicant would be C brought to a standstill, otherwise no special circumstances have been advanced for the stay order. He submitted further that his client, the respondent is in sound financial position in which case, in the event the applicant succeeds in the intended appeal, the amount, the subject matter of the decree would be repaid. Thirdly, Mr Maira pressed that the intended appeal has very slim chances of D success. And so, Mr Maira invited the Court to dismiss the application because, in his view, there was no reason why the respondent should be denied of his right to enjoy the fruits of his successful litigation. E

I will first deal with the discretionary powers of the Court in matters pertaining to application for stay of execution under Rule 9(2)(b) of the Court's Rules, 1979. As rightly submitted by Mr Maira, learned Counsel, in exercising the Court's discretion, such discretion should at all times be exercised judicially. This is in F order to ensure that the ends of justice in each case are attained. In order for this to be achieved, each case must be taken on its merits and circumstances. In the light of this general principle I will next examine the relevant factors for the granting or otherwise of the stay order in the instant case. G

In the first place, what is the loss and damage that the applicant is likely to sustain if no stay order is granted. As already indicated, Mrs Gama, learned Counsel for the applicant had urged that because the amount involved is huge, the applicant's H business would be brought to a stand still. With respect, I am unable to accept this as sufficient reason for the granting of a stay of execution. It is elementary that the loss involved should be such as would not be atoned by way of an award of damages. On this, there is an unbroken chain of authorities including decisions of this Court. Very recently, in Tanzania Cotton Marketing Board v Cogecot Cotton I

A Company SA (1) this principle was revisited. In this case, I am respectively in agreement with Mr Maira that the decretal amount if paid is capable of being repaid by the respondent. I cannot accept the submission by Mrs Gama that if a stay order is not granted, the applicant, a renowned public corporation would suffer B such irreparable loss that is incapable of being atoned by way of damages. Furthermore, in the instant matter, no sufficient ground has been laid upon which the Court could satisfy itself that in fact, such substantial loss would occur. With respect, mere claim that the applicant's business would be affected is not enough.

C I would now consider the other factor, namely, the chances of success of the intended appeal. Mrs Gama has vehemently urged that the intended appeal has overwhelming chances of success. This of course was strongly resisted by Mr D Maira, learned Counsel for the respondent. It is however relevant at this juncture, to reflect that this Court has on numerous occasions taken the view that the chances of success of an intended appeal though a relevant factor in certain situations, it can only meaningfully be assessed later on appeal after hearing arguments from both sides. See Transport Equipment Ltd v Reginald John Nolan E (2); Joseph K Mlay v Ahmed Mohamed (3). This, it is common knowledge is but a general principle which in my view, is not without exception. There are situations in which as a matter of exception to the rule and depending on the circumstances of the case, the chances of success can be gauged right away. In this case, one peculiar feature emerges quite clearly from the ruling of the High Court. That is F that, on 4 February 1997, the matter was set for a decision on the application for setting aside the order of 20 May 1994 which granted leave to the respondent to prove the suit ex parte. Having decided on that by rejecting and dismissing the G application the matter did not end there. The learned judge embarked on another exercise ie judgment was entered for the respondent on the basis of the affidavit as ex-parte proof. Ordinarily, with the dismissal of the application for setting aside the order of 20 May 1994, the matter should have been set for another date for ex-parte proof. As it was done, the opportunity for the applicant to appeal against that decision refusing to set aside the order of 20 May 1994 was shuttered by the entry of the ex-parte judgment. The propriety of this in my view, may well be a deserving legal point for close examination on appeal. H

Lastly, I think it desirable to consider the case within the principle of the balance of convenience. It is all the more so in matters involving the exercise of discretionary powers after considering the I

LUBUVA JA

various relevant factors. The modern and current trend in this direction is AI demonstrated by the following English case of Wincester Cigarette Machinery Ltd v Payne and Another (No 2) in which it was inter alia stated:

`In recent cases it has been said that the practice of the court had moved on from the principle B that the only ground for a stay was the reasonable probability that damages and costs paid would not be repaid if the appeal succeeded. Those cases hold that the approach of the court now was a matter of common sense and a balance of advantage ...' (emphasis supplied) C

In the instant case, the circumstances are such that even though the loss and damage that the applicant is likely to sustain if stay of execution is not granted can be atoned by way of damages, still I have lingering doubts in my mind whether a stay order is not warranted on account of other factors. These are, as already D pointed out, the prospects of the intended appeal and the balance of convenience. Consequently, having regard to the circumstances of the case, I am convinced that it accords with common sense and a sense of convenience that the discretionary powers of the Court under Rule 9(2)(b) to grant a stay of execution E pending appeal could appropriately be invoked. Accordingly, it is ordered that the execution of the decision of the High Court in Civil Case No 283 of 1988 dated 4 February 1997 be stayed pending the determination of the intended appeal. It is further ordered that the stay order is granted upon the condition that the applicant deposits the decretal amount in court. Costs in the cause. It is so ordered. F

1997 TLR p146

ASMIN RASHIDI v BOKO OMARI 1997 TLR 146 (CA) A

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Mfalila JA

CIVIL APPLICATION 23 OF 1997 B

16 May 1997

(An application to strike out notice of appeal from the decision of the High Court of Tanzania, Dar es Salaam, Mapigano J) C

Flynote

Civil Practice and Procedure - Appeal - Delay in prosecution of - What constitutes essential steps as envisaged by Rule 82

-Headnote

D The applicant applied to strike out the notice of appeal filed by the respondent for appealing against a ruling dated 25 April 1996 refusing to issue a certificate or to certify a point of law following the court's judgment on 17 October 1995. The court held that there was no point of

law involved to certify. The respondent filed the notice of appeal the same day, ie on 25 April 1996, but failed to take any steps thereafter. E

Held:

(i) The essential steps in the prosecution of an appeal as envisaged by Rule 82 were steps which advanced the hearing of the appeal and not explanations for delays. One of the essential steps in the instant case was to apply for leave to appeal against the ruling of the court of 25 April 1996 for there was no automatic right of appeal against that ruling; F

(ii) Nothing essential had been done since 25 April 1996 to prosecute the appeal for a whole year and the notice had to be struck out.

Case Information

Order accordingly. G

No cases referred to:

Magesa for the respondent.

[zJDz]Judgment

Mfalila JA: H

This is an application to strike out the notice of appeal filed by the respondent for appealing against the ruling of Mapigano J dated 25 April 1996 refusing to issue a certificate or to certify a point of law to this Court, following his judgment dated 17 October 1995. Mapigano J ruled that there was no point of law involved for him to certify. Following this ruling, the respondent filed the notice of appeal the same day, that is on 25 April 1996. But since then the I

respondent did nothing to prosecute the intended appeal, hence the applicant's A submission that the said notice of appeal be struck out.

Before proceeding further, I wish to correct the record that the notice of appeal being impugned in this application relates to the ruling of Mapigano J dated 25 April 1996 and not his judgment dated 17 October 1995. Hence the notice of appeal filed by the respondent on 25 April 1996 is in time and not time barred as stated in the applicant's affidavit. B

However, with regard to the lack of essential steps being taken, Mr Magesa, Counsel for the respondent, submitted that they did take essential steps in that they filed an application for extension of time within which to appeal against the ruling of Mapigaro J and that they did this as early as March 1997. The short C answer to this with respect is that this is not an essential step envisaged in Rule 82. What is envisaged in that rule are steps which advance the hearing of the appeal not explanations for delays. In this particular case, one of the most essential steps was to apply for leave to appeal against the ruling of Mapigano J of D 25 April 1996, for there was no right of appeal to this Court against that ruling. This was not done, all that was done was simply to apply for extension of time within which to appeal as if there was a right of appeal without leave. E

The notice of appeal was filed on 25 April 1996 and nothing essential has been done to-date to prosecute the appeal not even as far as the record shows, applying for copy of records with copy to the applicant.

In the circumstances I am satisfied that the respondent has failed to take essential F steps to prosecute the appeal for the last one year. This delay is more than inordinate.
I allow this application and order that the notice of appeal dated 25 April 1996 be and is hereby struck out with costs. G
1997 TLR p148

FRANCIS ITENGEJA v KAMPUNI YA KUSINDIKA MBEGU ZA MAFUTA LTD 1997 TLR 148 (CA) A

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga JA B

CIVIL APPLICATION 28 OF 1996
20 May 1997
(An application for striking out notice of appeal from the decision of the High Court of Tanzania, Dar es Salaam, Bubeshi J) C
Flynote
Civil Practice and Procedure - Appeal - Delay in prosecution of - What constitutes - Failure to serve applicant with a copy of notice of appeal and failure to lodge the appeal within 60 days D
-Headnote
The applicant applied for the striking out the respondent's notice of appeal for failure to take essential steps, viz the failure to serve a copy of the notice of appeal on the applicant or his counsel and to lodge the appeal within 60 days of the filing of the notice of appeal. E
The respondent contended that it had attempted to serve the copy of the notice of the appeal on the applicant who had refused to accept such service and directed the respondent to his legal counsel. The respondent contended further that it had in fact served the notice on the applicant's counsel. F
Held:

(i) Where a party has engaged the services of counsel then he is perfectly entitled to direct that any service relating to that case be effected on his counsel: he was not obliged to accept service personally;

(ii) On the probabilities and facts of the matter it could not be held that the documents were received by or on behalf of applicant's counsel. G

(iii) The failure to serve the applicant with a copy of the notice of appeal within 7 days as required by Rule 77(1) and the failure to lodge the appeal within 60 days of the notice as required by Rule 83(1) were in the absence of any extension of time by the court, grounds which warranted the striking out of the notice of appeal. H

Case Information
Order accordingly.

No cases referred to.
Kambamwene for the applicant.
Mbezi for the respondent. I
1997 TLR p149
[zJDz]Judgment
Kisanga JA: A
This is an application to strike out a notice of appeal for failure to take two essential steps, namely (1) to serve a copy of the notice of appeal on the applicant or his counsel and (2) to lodge the appeal within sixty days of the filing of the notice of appeal. The matter originates from the decision by the High Court (Bubeshi J) refusing an application to restore Civil Appeal No 91 of 1994 which had been B dismissed for want of prosecution. Following such refusal the respondent company was aggrieved, duly gave notice of its intention to appeal and obtained leave to appeal to this Court against the refusal. Meantime, however, and as C already intimated, the applicant has now brought this notice of motion seeking to have the notice of appeal struck out on the grounds as indicated above. Before me the applicant was represented by Mr J R Kambamwene, learned advocate while Mr D C Mbezi, learned advocate, appeared for the respondent company. D
The notice of motion is duly supported by the affidavit of Mr Kambamwene and that of the applicant himself. Both affidavits are to the effect that the respondent has failed to serve the applicant or his counsel with a copy of the notice of appeal and has failed to lodge the appeal within sixty days of the notice of appeal. Elaborating E on this in his oral submission, Mr Kambamwene maintained that as regards the failure to lodge the appeal within the prescribed period of sixty days, the respondent could not benefit from the exception under Rule 83(1) of the Court of Appeal Rules because the respondent did not serve the applicant or his counsel with any copy of a letter to the Registrar requesting for proceedings of the case in question. F
In response to this, two counter-affidavits were filed by Mr Mbezi and by one Mr Hyera, a principal officer of the respondent company. The depositions are to the effect that at first, attempt was made to serve on the applicant personally a copy of G the letter to the Registrar applying for proceedings, but that the applicant declined service and directed that the service be effected on his advocate, which was accordingly done within the time prescribed by the Court of Appeal Rules. H
It is elementary in matters of procedure that he who makes an allegation has the burden of proving it. In the context of this case Mr Mbezi and his client have the burden of proving their claim that they did serve on Mr Kambamwene, the applicant's advocate, the two documents in issue ie the copy of the notice of appeal and the copy of the letter to the Registrar applying for proceedings. In an I
1997 TLR p150
KISANGA JA
A attempt to discharge that burden Mr Mbezi produced a dispatch book which was allegedly signed to acknowledge receipt of the two documents. According to Mr Hyera who claims to have effected the service, he went to Mr Kambamwene's chambers in Dar es Salaam and there

handed to someone an envelope containing B the two documents. The handing ever of the envelope was against signature in the said dispatch book, but Mr Hyera does not know the name or otherwise the identity of the person so receiving the envelope and signing for it. Mr Kambamwene completely refuted the allegation.

C I have anxiously considered this matter in the course of which I have examined closely the relevant page of the dispatch book produced by Mr Mbezi. There is one striking feature which appears on this page. The spot corresponding to the alleged signature is rubbed off and completely obliterated such that no signature is identifiable there. In other words it is not possible for anyone to say that the D signature which has been rubbed off was or was not of a person working at Mr Kambamwene's chambers. As such, therefore, the dispatch book is completely worthless as evidence to prove that the two documents in question were received by, or on behalf of, Mr Kambamwene, the applicant's counsel as alleged. In other E words the signature which has been rubbed off from the dispatch book could be of any person quite unconnected with Mr Kambamwene or his chambers. Indeed Mr Mbezi conceded this point.

If the dispatch book cannot be relied upon to prove service of the two documents on the applicant's advocate, then what other evidence is there to prove it? I could find none. F

Mr Mbezi in another dimension contended that the two documents should be deemed to have been duly served on the applicant personally when he declined to accept them and directed them to be served on his advocate. With due respect I G cannot agree. Where a party to a case has engaged the services of counsel then in my view he is perfectly entitled to direct that any service relating to that case be effected on his counsel. He may, of course, accept service personally and then pass it on to his lawyer, but to my mind he is not obliged or bound to do so. Nor can such a party properly be said to have refused service in so doing. For, H all that he has done is to direct that the service be effected on his agent, and if such agent does exist and is identifiable then the party could not properly be said to have refused service; rather the party is merely saying that the matter should be referred to his agent who is better placed in terms of, say, expertise to deal with the matter. The position would be differ- I

ent if the said agent does not in fact exist; but this was not the position in the A present case because the applicant's advocate was known and could be located. I am therefore of the settled view that no service was effected on the applicant personally when he declined and directed that the same be effected on his counsel.

In yet another desperate attempt to resist the application Mr Mbezi referred to a B letter (EMS dated 4 December 1995) addressed to Mr Kambamwene and apparently enclosing copies of the two documents in question. According to the learned counsel, the two documents were thereby duly served on Mr Kambamwene, the applicant's advocate. However, as rightly pointed out by Mr Kambamwene, on the date of that letter ie 4 December 1995 the time for serving C the documents on the applicant had long elapsed, although the documents themselves were apparently written on time.

The net result, therefore, is that the respondent has failed to prove the allegation that the two documents ie a copy of the notice of appeal and a copy of the letter to D the Registrar applying for the proceedings of the case, were duly served on the applicant or his counsel. Since there has been no application for extension of time to serve these documents on the applicant, the present application must succeed. As Mr Kambamwene rightly pointed out, the respondent company cannot in terms of the exception under Rule 83(1) of the Rules claim protection against the time E running against it because the applicant was not duly served with a copy of the letter to the Registrar applying for court proceedings in the case. That is to say, the time for lodging the appeal has long elapsed, and there is nothing to salvage that situation. F

Thus, failure to serve the applicant with a copy of the notice of appeal within seven days of the notice as required by Rule 77(1) of the Rules, and failure to lodge the appeal within 60 days of the notice as required by Rule 83(1) are, in the absence of any evidence of extension of time by the Court to do these things, grounds which warrant the striking out of the notice of appeal, which I hereby do. The applicant is to have his costs. G

1997 TLR p152

MICHAEL LESSANI KWEKA v JOHN ELIAFYE 1997 TLR 152 (CA) A

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga JA

B CIVIL APPLICATION 6 OF 1996

20 May 1997

(An application for extension of time to serve a copy of the notice of appeal from the judgment and decree of the High Court of Tanzania, Dar es Salaam, Bubeshi J) C

Flynote

Civil Practice and Procedure - Appeals - Formalities - Extension of time within which to perform - Failure of clerk to serve notice - Advocate having acted diligently after discovery of inadvertence.

-Headnote

The applicant applied for an extension of time within which to serve a copy of a notice of appeal and a copy of his letter to the Registrar applying for proceedings in the case. It appeared that the advocate's clerk had, through inadvertence, failed to serve the two documents on the respondent's advocate. E

Held:

(i) The Court had power to grant an extension of time if sufficient cause had been shown for doing so;

(ii) In the instant case the applicant had shown reasonable diligence in correcting the error immediately upon discovery and this conduct F warranted consideration for enlarging the time in his favour.

Case Information

Order accordingly.

G No cases referred to.

Mbuya for the applicant.

The respondent appeared in person.

[zJDz]Judgment

Kisanga JA: H

This is an application for extension of time to serve on the respondent a copy of the notice of appeal and a copy of the letter to the Registrar applying for proceedings in the case. The applicant is advocated for by Mr E H Mbuya while the respondent appeared and resisted the application in person.

The ground for the application, as set out in the affidavits of Mr Mbuya and his clerk, one Elda Maro, is that the said Elda Maro, I

through inadvertence, failed to serve the two documents above mentioned on the A respondent's advocate.

The respondent vigorously resisted the application on the ground that inadvertence on Mr Mbuya's clerk does not amount to sufficient cause for granting extension of time, and that Mr Mbuya must take responsibility for the failing of his clerk. He added that this case has been in the courts for too long so that granting this B application would serve to deny him further the right to enjoy the fruits of his victory which he has consistently won in the lower courts.

I have given due consideration to the arguments advanced by both sides. Under Rule 8 of the Court of Appeal Rules this Court has power to grant the extension of C time sought if sufficient cause is shown for doing so. Although generally speaking a plea of inadvertence is not sufficient, nevertheless I think that extension of time may be granted upon such plea in certain cases, for example, where the party putting forward such plea is shown to have acted reasonably diligently to discover the omission and upon such discovery, he acted promptly to seek D remedy for it. In the instant case Mr Mbuya's clerk is shown to have overlooked serving the respondent's advocate with the documents in question on 27 November 1995 when she filed the notice of appeal in Court. Mr Mbuya in his affidavit says that he discovered this omission on 2 February 1996 when he was E conducting regular checks of his files. In his oral submission he stated that he was conducting such check upon resumption of business following the court Christmas vacation which starts in mid-December and finishes at the end of January each year. By this I understood Mr Mbuya to say that he took off time to F rest during the court Christmas vacation and went back to work only after such vacation was over. If this is so, then Mr Mbuya had just about two working weeks between the date of the omission by his clerk, ie on 27 November 1995 and the date he discovered the omission on 2 February 1996. The rest of

the time was G taken up by the court Christmas vacation. It seems to me that Mr Mbuya acted reasonably diligently whereby he was able to discover the omission within the space of only two weeks. And upon discovery of the omission on 2 February 1996 he again acted reasonably promptly by filing this notice of motion in Court on 8 February 1996 seeking to have the omission remedied. He did this before the H matter was set for hearing and indeed before the opposite party took any steps to have the notice of appeal struck out for reasons arising from the omission in question.

In my view the way Mr Mbuya conducted himself in handling this I

A matter following the omission would warrant consideration for enlarging the time in his favour. Accordingly I grant the application. A copy of the notice of appeal and a copy of the letter to the Registrar applying for a copy of court proceedings are to be served on the respondent within three days of this Ruling. Costs of this application shall abide the results of the appeal. B

FORTUNATUS MASHA v WILLIAM SHIJA AND ANOTHER 1997 TLR 154 (CA) C

Court Court of Appeal of Tanzania - Dar es Salaam D
Judge Mfalila JA

CIVIL APPLICATION 6 OF 1997

21 May 1997

E (An application for extension of time within which to file appeal from ruling of the High Court of Tanzania, Dar es Salaam, Lugakingira J)

Flynote

F Civil Practice and Procedure - Appeals - Formalities - Extension of time within which to perform - Technical delay caused by the prior filing of defective notice.

-Headnote

The applicant applied for an extension of time within which to file the appeal. The application was opposed by the respondent.

Held: G

A distinction had to be drawn between cases involving real or actual delays and those such as the present one which clearly only involved technical delays in the sense that the original appeal was lodged in time but had been found to be incompetent for one or another reason and a fresh appeal had to be instituted. In the present case the applicant had acted immediately after the pronouncement of the ruling of the court striking out the first appeal. In these circumstance an extension of time ought to be granted. H

Case Information
Order accordingly.
No cases referred to.
Mwale for the first respondent. I
1997 TLR p155
[zJDz]Judgment
Mfalila JA: A
This is an application for extension of time within which to file the appeal. The original appeal was struck out by this Court as being incompetent on the ground that no order had been extracted and filed with the appeal. The court then directed that it was open to the appellant in that appeal to institute the appeal afresh by making the appropriate applications. The appropriate application in such B circumstances is one for enlargement of time within which to institute the fresh appeal. The present application is such a one.
Mr Mwale learned Counsel for the first respondent opposed this application on two C grounds. First he said that the application itself is incompetent because it was filed under the wrong rule ie Rule 45 instead of Rule 8. Secondly he said that apart from negligence of Counsel for the applicant, there is no other reason for this delay.
With regard to the first ground, I would say that the omission of Rule 8 from the D heading of the notice of motion cannot affect the validity of the application because it is quite clear from the body of the application itself that it is for the extension of time which can only be made under Rule 8. The error can therefore rectified by simply inserting Rule 8 in the heading of the application, which step is hereby directed to be done. E
With regard to the second point, I am satisfied that a distinction should be made between cases involving real or actual delays and those like the present one which only involve what can be called technical delays in the sense that the original appeal was lodged in time but the present situation arose only because the original F appeal for one reason or another has been found to be incompetent and a fresh appeal has to be instituted. In the circumstances, the negligence if any really refers to the filing of an incompetent appeal not the delay in filing it. The filing of an incompetent appeal having been duly penalised by striking it out, the same cannot be used yet again to determine the timeousness of applying for filing the fresh appeal. In fact in the present case, the applicant acted immediately after the G pronouncement of the ruling of this Court striking out the first appeal.
Secondly by implication this court was minded to give the applicant a second chance when it categorically told the applicant that it was open to him to institute a H fresh appeal by taking the necessary steps towards that goal.
For these reasons I allow this application and extend the time for filing or instituting a fresh appeal in accordance with the following time line: I
1997 TLR p156
MFALILA JA
A (a) The applicant should file the notice of appeal within fourteen days from the date of this ruling.

(b) Thereafter the processing of the appeal including the timetable will be in accordance with the rules of this Court.
The costs of this application to be in the cause. B
1997 TLR p156

SAID HIMID MWILIMA v TABORA REGIONAL TRADING CO 1997 TLR 156 (CA) C

Court Court of Appeal of Tanzania - Dar es Salaam D
Judge Ramadhani JA

CIVIL APPLICATION 65 OF 1996
23 May 1997
E (An application for stay of execution from the judgment of the High court of Tanzania, Tabora, Mchome, J)
Flynote
Civil Practice and Procedure - Appeals - Stay of execution pending appeal - When granted - Notice of appeal inoperative because no leave to appeal obtained and time for applying for such already run out F
-Headnote
The applicant applied for a stay of execution of a judgment pending an appeal. It appeared that no leave to appeal had been sought or granted and the time for applying for such leave to appeal had already run out. There was furthermore no G application for an order to enlarge such time.
Held:
Granting an order of stay of execution pending the determination of a wishful thinking appeal was idle. Stay of execution was in the discretion of the court and had to be exercised judicially. In the present case it could not be granted. H
Case Information
Order accordingly.
No cases referred to.
Kashumbugu for the applicant.
Hatib for the respondent. I
1997 TLR p157
[zJDz]Judgment
Ramadhani JA: A
The applicant, said Himid Mwilima, was the defendant in a suit before the Resident Magistrate's Court at Tabora. As that suit was decided ex-parte, the applicant was aggrieved and sought to set aside the judgment. The case was reopened and both parties were given a hearing. However, the judgment was still in favour of the BI respondent. The applicant appealed to the High Court of

Tanzania at Tabora where Mchome J dismissed the appeal on the ground that the ex-parte judgment had not been set aside and thus the subsequent proceedings were void and, therefore, there was no appeal before him. C

The applicant is aggrieved by that decision of Mchome J and has filed a notice of appeal in this Court. Meanwhile he has filed this application praying for an order of stay of execution pending the determination of the appeal.

The applicant before me was represented by Mr Kashumbugu, learned advocate, D while the respondent, the Tabora Regional Trading Co, was represented by one Mohammed Hatib, the sales representative of the respondent here in Dar es Salaam.

I am well aware that Mr Mohammed Hatib, as the sales representative of the E respondent in Dar es Salaam, is not one of the persons mentioned in sub-Rule (3) of Rule 28 as persons who can represent a corporation. Even such persons have to be appointed by resolution under the seal of the company a copy of which has to be filed with the Registrar. So, Mr Hatib cannot be said to have represented the respondent and that in effect the application was heard ex-parte under sub-Rule (6) of Rule 73. F

There is no dispute that the High Court judgment was delivered on 27 March 1996 and that the notice of appeal was filed on 10 April 1996. Mr Kashumbugu also concedes that leave to appeal is required and that to date it has not been obtained. The learned advocate told the Court that an application for extension of time for G filing an application for leave to appeal was presented to the High Court at Tabora on 29 March 1996 but was not received because the file was in Dar es Salaam. Mr Kashumbugu admits that at that time, 29 March, the applicant was already seven H months late to seek leave to appeal. The learned advocate did not say whether or not the application for the enlargement of time in which to file an application for leave to appeal has now been filed.

The situation, then, is that there is a notice of appeal which is inoperative because there is not the prerequisite leave to appeal and that time for applying for such leave has already run out while it I

A does not appear that an application to enlarge that time has been made. In any case, one cannot say without any hesitation that there is an appeal pending in this Court.

I have no doubt in my mind that granting an order of stay of execution pending the determination of a wishful thinking appeal is, to say the least, idle. Stay of execution is a discretion of the Court and, as usual, a discretion has to be exercised judicially. B

This appeal is dismissed. I cannot order any costs as the order is ex-parte. It is so ordered. C

TANGANYIKA MOTORS LTD v TRANS-CONTINENTAL FORWARDERS AND ANOTHER
1997 TLR 158 (HC) D

Court	High Court of Tanzania - Dar es Salaam
Judge	Msumi J E

CIVIL CASE 262 OF 1994
29 May 1997
Flynote
Civil Practice and Procedure - Res judicata - Whether applicable to a case decided ex-parte F
-Headnote
The defendants raised a number of preliminary issues in their written statement of defence on the competence of the suit filed by the plaintiff, including one which contended that the issue was res judicata as the plaintiff had previously claimed similar relief against the first defendant which had been dismissed for plaintiff's G failure to adduce evidence in its support. The defendant claimed that the doctrine of res judicata did not apply as the previous matter had been decided ex-parte.
Held:
(i) It did not matter that the earlier suit had been decided ex-parte: the relief sought was exactly the same as that pleaded by the plaintiff in the present case. The plea had to be upheld. H
Case Information
Order accordingly
No cases referred to.
Majithia for the plaintiff.
Kinguji and Mwidunda for the defendants. I
1997 TLR p159
[zJDz]Judgment
Msumi J: A
What are for determination in this ruling are the preliminary issues raised by the defendants in their Written Statement of Defence on the competence of the suit filed by the plaintiff. First defendant raised three issues but in the course of his submission, his counsel apparently conceded that two of these issues, which are B that the suit is time barred and that the suit immovable property has not been sufficiently described in the plaint as required under the provisions of Ord 7 Rule 3 of the Civil Procedure Code, were not sustainable. The remaining issue which has also been raised by the other defendants is that the suit is res judicata. It is argued C that prior to this case, plaintiff had filed a suit in this court as Civil Case No 126 of 1986 in which he claimed against the first defendant reliefs similar to those claimed in the present case. The said case was dismissed for plaintiff's failure to adduce evidence in its support. It was an ex-parte decision. D
In reply the learned counsel for the plaintiff contends that the doctrine of res judicata does not apply to a case decided ex-parte because it cannot be said that consequent to such ex-parte

judgment the suit has been finally determined. Expectedly the learned counsel could not cite any authority in support of his argument. On the contrary the law is not in harmony with the learned counsel's argument. Just to mention one authority, Mulla on Code of Civil Procedure, vol I 4th ed at 87 says: E

`Ex-parte decrees operate to render the matter decided res judicata, and the defendant's F failure to appear will not deprive the plaintiff of the full benefit of his decree. But in the case of a suit in which a decree is ex-parte, the only matter that can be directly and substantially in issue is the matter in respect of which relief has been claimed by the plaintiff in the plaint. A matter in respect of which no relief is claimed cannot be directly and substantially issue in a suit in which a decree is passed ex-parte though the court may have gone out its way and declare the plaintiff to be entitled to relief in respect of such matter.' (emphasis supplied). G

In the previous case, plaintiff prayed for the following two specific reliefs: H

1. A declatory order confirming the plaintiff as the true and lawful owner of the suit premises viz plot No 61744 Kurasini, Dar es Salaam.

2. A permanent injunction restraining/preventing the defendant from trespassing into the suit premises. I

1997 TLR p160

MSUMI J

A These prayers are exactly the same as those pleaded by the plaintiff in his plaint in the present case. This means that the matter which is directly and substantially in issue in both cases is the same and that the said matter has been finally determined by the ex-parte judgment issued in the previous case. In other words the doctrine of res judicata is operative in this case. B

In conclusion the preliminary objection that the suit is res judicata is upheld hence the said suit is dismissed with costs.

1997 TLR p160

PRINCIPAL SIMANJIRO ANIMAL HUSBANDRY VOCATIONAL TRAINING CENTRE v ARNOLD MAKINDA 1997 TLR 160 (HC) D

Court High Court of Tanzania - Arusha E
Judge Mroso J

CIVIL REVISION 8 OF 1997

10 June 1997 - ARUSHA

Flynote

F Civil Practice and Procedure - Fresh proceedings - Institution of in violation of Order 23 Rule 1(3) - Employment cause - Whether such constitutes a suit for purposes of Order.

-Headnote

G In an application for the revision of certain proceedings the court was required to determine whether the institution of an employment cause was a suit for the purposes of Order 23 Rule 1(3).

Held:

(i) The cause in question was not initiated by a plaint as is the case with a suit but by a labour officer's report. The labour officer had statutory authority under s 132 of the employment Ordinance to refer to a magistrate employment disputes which he had failed to settle; H

(ii) Under s 134 of the Employment Ordinance a magistrate could treat the report as if the proceedings were a civil suit: thus the proceedings were not really a suit and even the provisions of the Civil Procedure Code in respect of such proceedings were relevant only as far as they might be applicable; I

(iii) The court remarked further that it was implicit in s 133(1) that the A district magistrate in question had the requisite territorial jurisdiction.

Case Information

Application granted and proceedings set aside.

No cases referred to.

M Chambers and L Chambers for the respondent. B

[zJDz]Judgment

Mruso J:

This court has been moved by the applicant acting through his advocates, M/s D'Souza Chambers, to call for the lower court record in Employment Cause No 13 C of 1995 of the District Court of Arusha (sic) and revise certain proceedings in it under s 44(1)(b) of the Magistrate' Courts Act 1984. Let me hasten to point out that the District Court of Arusha would not have jurisdiction over the dispute if the cause of action occurred in Simanjiro, which is a different territorial jurisdiction from the Arusha district. Besides, if the name of the opposed defendant is anything D to go by, he is supposed to be residing or carrying on business in Simanjiro district. I have used the word `supposed' intentionally because I suspect there may be a question whether the defendant as depicted in the pleadings is a legal person capable of being sued. Even so, these two matters were not argued before me E and I express no decision on them. It is apparent, however, that the respondent intended the proceedings to be filed in the Court of Resident Magistrate, Arusha because the report of the Regional Labour Officer, Arusha which initiated the F proceedings before the lower court was addressed to `The Senior Resident Magistrate, Resident Magistrate (sic) Court, PO Box 104, Arusha', not of the District Court, Arusha. For inexplicable reasons, probably sheer carelessness, the cause was opened in the District Court of Arusha, as the case file cover shows. Indeed, if the cause had been filed in the Court of Resident Magistrate, Arusha as G the respondent Arnold K Makinda appears to have intended, Mr Mbuge, District Magistrate, would not have territorial jurisdiction not to say that he does not sit in the Court of Resident Magistrate, Arusha. Now back to the matters that

were presented by the applicant to the High Court for revision. But first, a brief background to these proceedings. The respondent, Makinda, had filed civil case H No 22 of 1994 in the Court of Resident Magistrate, at Arusha against the applicant. On 25 April 1994 the suit was withdrawn at the request of the respondent, then plaintiff. A certified true copy of the prayer to withdraw the suit and the court order making the suit and a Miscellaneous Civil Application No 63 of I

A 1994 was withdrawn has been annexed to the Chamber Application in these revision proceeding. In around February 1995 Employment Cause No 13 of 1995 was filed in court. The advocates for the applicant raised a preliminary point of objection that the case which appeared to be substantially the same case which the respondent had earlier withdrawn was being refiled contrary to the provisions B of Ord 23 Rule (3) of the Civil Procedure Code. Another preliminary point of objection was that assigned District Magistrate, Mr Mbuge, did not have pecuniary jurisdiction in view of the amount of over one million shillings which the respondent C was claiming against the applicant. It was pointed out to the presiding magistrate that his pecuniary jurisdiction, according to Government Notice No 495 of 1990, was limited to shillings 100 000/= in the case of movable property and Shs 150 000/= in the case of immovable property. Both those points of law were overruled D by the presiding District Magistrate. Subsequently, however, the District Magistrate conceded that he had no pecuniary jurisdiction and disqualified himself. The case was reassigned to a Resident Magistrate, Ms Mushi. In the meantime E Government Notice No 432 of 1966 was published in the Official Gazette on 29 November 1996. By that Government Notice the pecuniary jurisdiction of Mr Mbuge as well as that of many other District Magistrates was enhanced to Shs 10 million in the case of movable property and to Shs 12 million in the case of immovable F property. The amount claimed in Employment Cause No 13 of 1995 appeared therefore to be within the pecuniary jurisdiction of Mr Mbuge. So, on 25 March 1997 the Resident Magistrate In-charge re-assigned the case back to Mr Mbuge for trial. The advocates for the applicant urge that even though Mr Mbuge now has G enhanced pecuniary jurisdiction yet the order he made that he had jurisdiction should be quashed and, secondly, that the employment cause which was filed without leave after the withdrawal of Civil Case No 22 of 1994 and the ruling of Mr Mbuge that Order 23 Rule 3 of the Civil Procedure Code had not been violated should be quashed and set aside. Finally, that the case should now be reassigned to another magistrate of competent jurisdiction instead of Mr Mbuge because even if the same argument about Employment Cause No 13 of 1995 were to be made again to him he is unlikely to change his mind in view of his own earlier ruling on the matter. H

The respondent was represented in the present proceedings by two firms of advocates namely Makange Chamber and Lengai Chambers. They conceded that the proceedings which were before I

Mr Mbuge before his pecuniary jurisdiction was enhanced were invalid but argued that now he has A jurisdiction and should proceed to hear the case. They also prayed that since it is the magistrate who assumed jurisdiction he did not have, the respondent should not be saddled with costs of these revision proceedings.

Although the respondent claims that he withdrew from court Civil Case No 22 of 1994 with leave to B refile the lower court records before me do not bear him out. It is shown that the respondent who was addressing the RM's Court in Miscellaneous Civil Application No 63 of 1994 said:

> `I pray to withdraw the matter with this court since I have another matter pending before the labour officer.' C

Then he proceeded to say:

> `I have withdrawn both the main suit and the Chamber Application.' D

By the main suit he meant Civil Case No 22 of 1994. So, according to the court record he did not say he withdrew the suit with leave to refile as he now claims. He also did not seek and obtain an affidavit from Mrs P S Fikirini, RM (as she then was) to the effect that the respondent had withdrawn E the suit with leave to refile but that she omitted to record him correctly. If Employment Cause No 13 of 1995 was a suit, therefore, it violated the provisions Order 23 Rule 1(3) of the Civil Procedure Code 1996 because the respondent had no permission of the court to institute the fresh F proceedings. The question is whether the employment cause which appears to have been brought under s 132 of the Employment Ordinance, Cap 366 as amended by Act 5 of 1969 was a suit within the meaning of Order 23 Rule 1(3) of the Civil Procedure Code.

It seems to me that while Civil Case No 22 of 1994 was undoubtedly a `suit' Employment Cause No G 13 of 1995 was not. That cause was not initiated by a plaint as is the case with a suit but by a labour officer's report. The labour officer has statutory authority under s 132 of the Employment Ordinance, again as amended by Act 5 of 1969, to refer to a magistrate employment disputes H which he has failed to settle.

Under s 134 of the Employment Ordinance (as amended by Act 5 of 1969) a magistrate can treat the report `as if the proceedings ... were a civil suit'. Thus, the proceedings initiated by a labour officer's report are not really a suit and even the provisions of the Civil Procedure Code in respect of I such proceedings are relevant only `as

A far as they may be applicable'. The section ends with a proviso that the magistrate shall hear and determine such proceedings according to substantial justice `without undue regard to technicalities of procedure'. It will also be observed (unless the definition of district magistrate in s 133 of the B Employment Ordinance has since 1963 be amended) that any district magistrate whether or not he is a civil magistrate can try proceedings under the Ordinance. I hold, therefore, that the proceedings in Employment Cause No 13 of 1995 are not necessarily invalid for the reasons given by the applicant.

Section 133(1) of the Ordinance is in the following words:

C `133(1) Every district magistrate (whether or not he is a civil magistrate) shall have jurisdiction, notwithstanding anything to the contrary contained in any Ordinance or law respecting the jurisdiction of such magistrate, in all cases and matters arising between employers and their employees and with reference to their relative right and D duties or to any matter on thing or offence for which provision is made in this Ordinance.'

On a casual glance at this subsection one might think that any district magistrate regardless of whether he has territorial jurisdiction could adjudicate an employment dispute brought to court E through a report of a labour officer. But I think that such an understanding of the provisions would be wrong. It cannot be that a district magistrate could go to any place in the country regardless of whether he was posted to the district and proceed to try an employment dispute which was taken to F the court by a labour officer. I think it is basic that the district magistrate has requisite territorial jurisdiction. It is for that reason that I think that after the pleadings have been filed in the correct court, which I believe would be the court of Resident Magistrate, a resident magistrate should be assigned to try it. All this should be done as speedily as possible so that the long outstanding G dispute can be resolved. The respondent should also take opportunity to revisit the question whether he still intends to proceed against the person shown as the defendant.

The proceedings in Employment Cause No 13 of 1995 in the District Court of Arusha are hereby quashed and set aside but since this decision is not based on the grounds advanced by the H respondent, each party to bear their own costs.

1997 TLR p165

A

TANZANIA COTTON MARKETING BOARD v COGECOT COTTON COMPANY SA 1997 TLR 165 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga JJA, Mfalila JJA and Lubuva JJA

B

CIVIL APPEAL 2 OF 1997

16 June 1997

(An appeal from the decision of the High Court of Tanzania at Dar es Salaam, Kaji J) C

Flynote

Arbitration - Award - Enforcement of - Filing of arbitration award - Not necessary that this be done by arbitrator himself - Arbitration Ordinance s 11(2) Chapter 15.

Arbitration - Award - Enforcement of - Filing of arbitration award - Award forwarded by courier and not registered D post - Compliance with rule 4 of Arbitration Rules, 1957.

-Headnote

The appellant appealed against the decision of the High Court which had granted an application for the formal filing of an arbitration award. The appellant contended (a) that the court had

erred in E allowing the filing as there had not been compliance with s 11(2) of the Arbitration Ordinance Chapter 15 in that the arbitrator had not filed the award but had had it filed by a firm of advocates; and (b) that the filing was irregular as the award had been forwarded by DHL courier and not by registered post as required by rule 4 of the Arbitration Rules, 1957. F

Held:

(i) There was no reason for a restrictive interpretation of the provisions of s 11(2) which allowed the arbitrator to `cause the award, or a signed copy of it to be filed in the court'. The import of this was that the arbitrator could either file the award himself in court or G could cause the award to be filed by instructing somebody else to do it on his behalf;

(ii) the words `registered post' had to be interpreted widely enough in order to take into account the current development in communication technology, such as courier postal services, that had taken place since 1957 when the rules were enacted. In the H circumstances the award had been properly filed.

Case Information

Appeal dismissed.

Cases referred to:

1. Volkart Brothers v Achrajram & others [1933] AIR Sind 160 I

1997 TLR p166

A 2. Achrajsing v Achirajram Sahmi [1933] AIR Sind 78

3. Ahmed Musaji Saleji [1912] 40 ILJ 212

Mselem for the appellant.

Dr Kapinga and Ms Kasonda for the respondent.

[zJDz]Judgment

B Lubuva JA:

The appellant, Tanzania Cotton Marketing Board (hereinafter referred to as the appellant) has appealed against the decision of the High Court (Kaji J) sitting in Dar as Salaam in Misc Civil Cause No 34 of 1996. In that case the respondent, Cogecot Cotton Company SA, a limited liability C company incorporated in Geneva, Switzerland had filed an arbitration award in the High Court of Tanzania at Dar es Salaam. The background of the case is as follows: Between 1993 and 1994, the appellant and the respondent had entered into a sale agreement for the purchase of raw cotton. D The appellant was the exporter and the respondent was the buyer. A dispute arose between the appellant and the respondent which resulted in the matter being referred to arbitration before the Liverpool Cotton Association Limited. An award granted in favour of the respondent was also confirmed by the Technical Appeal Committee of the Arbitrators. Through the services of M/S E Mkono and Company Advocates the award was filed in the High Court where the appellant raised objection. The main ground of objection was that in filing the award, proper procedure as required under the Arbitration Ordinance was not followed. The learned judge overruled the objection and granted the application for the formal filing of the award. From that decision, this appeal has been F instituted.

At the hearing of this appeal, the appellant was represented by Mr Mselem, learned counsel for the Tanzania Legal Corporation. Mr Mselem, learned counsel had also represented the appellant

before G the High Court in this matter. On the other hand, the respondent was represented by Dr Kapinga assisted by Miss Kasonda, learned counsel. Five grounds of appeal had been raised in the memorandum of appeal. However, at the hearing of the appeal, Mr Mselem opted not to argue on H ground five. He argued grounds one and three together. They read as follows:

1. That the learned trial judge erred in law and facts in holding that it is the arbitrator who filed and forwarded the application for the award.

I 3. That the learned trial judge erred in holding that the award is presumed to be duly filed at the instance of the arbitrator.

1997 TLR p167

LUBUVA JA

Arguing these two grounds of appeal Mr Mselem submitted that the filing of the award was done A contrary to the law. He advanced two reasons: First, he said, the mandatory provisions of s 11(2) of the Arbitration Ordinance, chap 15 of the laws were not complied with. That is, according to Mr Mselem, under that section the award should be filed directly by the arbitrator and not through M/S Mkoro and Company Advocates who forwarded the award to the Court. Secondly, Mr Mselem B contended that as the award was forwarded to the Registrar of the High Court by DHL and not by registered post, the procedure involved was in contravention of Rule 4 of the Arbitration Rules, 1957. In concluding his submission on this point Mr Mselem reiterated that as long as the principal C legislation on arbitration and the relevant rules still remain unamended, any other method of communication applied in forwarding the award would be an improper procedure unknown to the law. And so the matter was not properly before the Court Mr Mselem insisted. D

Dr Kapinga, learned counsel for the respondent maintained that M/S Mkono and Company advocates were duly instructed by the arbitrators to forward the award to the Registrar of the High Court for filing. In support of this submission Dr Kapinga referred to the letter dated 1 March 1996 E address to Registrar High Court by the arbitrator. In that letter Dr Kapinga submitted, it is clearly stated that the respondent, a party to the arbitration, had requested the arbitrators to file the award in the High Court. On that basis Dr Kapinga submitted that it was the arbitrator who forwarded the F award as required under s 11(2) of the Arbitration Ordinance. Alternatively, Dr Kapinga took the view that even if it is accepted that M/S Mkono and Company Advocates forwarded the award for filing in Court on behalf of the arbitrators, that would still be proper under the law. The reason for that, Dr Kapinga stated, was that s 11(2) of the Arbitration Ordinance, chap 15 is such that an award can be G filed by some other person who is duly instructed by the arbitrators. It is to be observed that the words used in that section are to the effect that the arbitrators or umpire shall, at the request of the party to the submission cause the award to be filed in the court. In the view of Dr Kapinga, causing H to be filed in the court, means that at the initiative of the arbitrators, any other person who is so instructed can properly file an award in the court as it was done in this case by M/S Mkono and Company Advocates. In support of this contention, Dr Kapinga, learned counsel, referred to the book titled Law of Arbitration by the learned author S D I

1997 TLR p168

LUBUVA JA

A Singh, 9th ed which has an exhaustive and analytical commentary on the Indian Arbitration Act at 251 para 18. Dr Kapinga also drew out attention to the fact that s 15 of the Arbitration Act, 1899 of India is equivalent to our s 11(2) of the Arbitration Ordinance of Tanzania and that India also has the B equivalent of Rules 4 and 5 of our Arbitration Rules, 1957.

The central issue for consideration in this appeal is whether the award was properly filed in the court. Mr Mselem, as already indicated vigorously contended that it was not. At this juncture we think it is appropriate to examine closely the provisions of s 11(2) of the Arbitration Ordinance, chap C 15 of the Laws. It reads:

`11(2) -- The Arbitrators or umpire, shall, at the request of any party to the submission or any person claiming under him, and upon payment of the fees and charges due in respect of arbitration and award, and of the costs D and charges of filing the award cause the award, or a signed copy of it to be filed in the Court, and notice of the filing shall be given to the parties by the arbitrators or umpire' (emphasis supplied).

E From the wording of this subsection, the question that has engaged our minds considerably is whether the law as it stands makes it mandatory for the award to be filed by the arbitrator himself personally. On this, we are, with respect, unable to accept Mr Mselem's submission that as a matter of law, the filing of the award must be done by the arbitrator himself to the exclusion of any F other person. We can find no reason or justification for such a restrictive interpretation of the law. We are respectfully in agreement with Dr Kapinga, learned counsel for the respondent that the wording of this section is such that at the request of the party involved in the arbitration, the G arbitrator can instruct some other person to file the award in Court. In our view, this is because the operative words in the section are those underlined in the extract above. That is, `upon request, the arbitrator shall cause the award to be filed in court'. In our considered opinion, the import of the word `cause' in its literal ordinary meaning is that the arbitrator can either file the award himself in H Court or can cause by instructing somebody else to do it on his behalf. This we think accords more with the practical realities of life where it is not feasible for one to attend to all matters physically in person everywhere. For that reason it is a common phenomenon to have professional bodies such as law firms instructed to take up cases on behalf of other firms or clients in far distant places. We I are reinforced in this view by the commentaries

of the learned author S D Singh in this book Law of Arbitration, 9th ed p 251 where in para 18 - A Filing of the award under ss (2) of s 2 of the Indian Arbitration Act, 1940, the equivalent of our s 11(2) of the Arbitration Ordinance it is observed:

`The actual filing by the arbitrator or umpire is not essential -- it is sufficient if he causes the award to be filed and B even if he forwards the award by post to the Court there would be sufficient compliance with the provision of sub-section (2). -- The act of filing of the award must be his or on his behalf....'

In the circumstances, we are satisfied that the filing of the award by M/S Mkono and Company C Advocates on the instruction of the arbitrators, was sufficient compliance with s 11(2) of the Arbitration Ordinance. With respect, we can find no fault with the learned Trial Judge in his holding on this point.

On the other hand, the matter could be carried even further. As already indicated, the arbitrators -- D the Liverpool Cotton Association Ltd, by their letter dated 1 March 1996, addressed to the Registrar, High Court Dar es Salaam forwarded the award for filing. That was done in compliance with Rule 4 of the Arbitration Rules, 1957. In that letter the arbitrators in clear terms have stated that E they have been requested by the respondent, a party to the arbitration to cause the filing of the award in court. With the letter all the required documents in terms of Rule 4 were enclosed in a sealed envelope which was forwarded to M/S Mkono and Company Advocates by DHL. As F requested, M/S Mkono and Company Advocates forwarded the sealed envelope to the Registrar High Court with a covering letter of 11 March 1996. The Arbitrator's letter of 1 March 1996 is to the effect that the arbitrators had been requested by the respondents to cause the award to be filed in the High Court and that M/S Mkono and Company had been instructed to pursue the matter in court. G As against this background of facts which are not disputed, Mr Mselem seeks to fault the learned trial judge in holding that it was the arbitrator who forwarded the award for filing in court. We are unable to go along with Mr Mselem, learned counsel on this point. It is common knowledge that the essence and spirit behind the enactment of the law under s 11(2) of the Arbitration Ordinance chap H 15 is the safe receipt of the award. That it should be received by the Registrar, High Court in the form in which it was forwarded by the arbitrator without any tampering. In this case, we can see no reason for suspecting that there was any tampering with the envelope which was received by the Registrar. In I

A his submission before us, Mr Mselem categorically stated that he had no evidence to substantiate any suspected tampering with the envelope. We are therefore in agreement with the finding of the learned Trial Judge that the award was safely received by the Registrar. In our B considered opinion, the role played by M/S Mkono and Company Advocates in the handling of the award was that of a conduit, and therefore the learned judge properly directed himself in his finding that the award was filed by the arbitrator. For these reasons we dismiss grounds one and three.

Then Mr Mselem, learned counsel dealt with grounds two and four. The essence of the appellant's C complaint in these grounds is that the award was not filed in accordance with the law because the courier, ie DHL used in forwarding the award is not a registered post in terms of Rule 4 of the Arbitration Rules, 1957. Briefly but firmly it was Mr Mselem's submission that the application for the filing of the award was not made by way of a petition which is a mandatory requirement under Rule D 4. There was therefore no award filed in court in terms of the rules which could be enforced in law, Mr Mselem contended. Furthermore, Mr Mselem contended

that it was improper to forward the award by DHL, because the express mandatory requirement of Rule 4 is that the award is to be E forwarded by registered post.

Responding to this submission Dr Kapinga submitted that the expression `registered post' which appears in Rule 4 is not a legal term of art. It should therefore be given a wide interpretation in order F to include the modern method of postage which includes other couriers ie DHL etc, Dr Kapinga urged. On the contention that the application for filing the award was not made by way of a petition as required under Rule 5 of the Arbitration Rules, 1957, Dr Kapinga maintained that in view of the clear wording of s 11(2) of the Arbitration Ordinance, the interpretation of Rule 5 should be such as G not to restrict the operation of the principal legislation. In the light of the provisions of s 11(2) of the Arbitration Ordinance and Rule 4, Dr Kapinga concluded, the filing of the award was in compliance with the requirement of the law.

H We accept Dr Kapinga's submission regarding the interpretation of Rule 4. While it is an undisputed fact that under Rule 4 of the Arbitration Rules, 1957, the award is to be forwarded to the Registrar of the High Court by registered post, the words `registered post' should be interpreted widely enough in order to take into account the current development in communication technology I that has taken place since 1957 when the rules were enacted. It is common

knowledge that since that time other modes of postage have been introduced. The DHL system A which was used in this case in among such modes of communication. With due respect to Mr Mselem, learned counsel for the appellant, it is our view that it would be impractical and unrealistic on the part of the court to give such a restrictive interpretation to the words `registered post' which B excludes other courier systems. Similarly, we are unable to accept Mr Mselem's contention that the award was not properly filed because it was not made by way of a petition as provided under Rule 5. It is to be observed that s 11(2) of the Arbitration Ordinance Cap 15 in essence provides to the effect that the arbitrator upon request shall `cause the award' to be filed in Court. It does not in any C way restrict or specify as to how the arbitrator shall cause the award to be filed. Moreover, the words `by registered post and in a sealed envelope' are found in the subsidiary legislation under Rule 4. From the wording of the principal legislation in s 11(2) and the subsidiary legislation in Rule D 4, it is apparent to us that the subsidiary legislation is more restrictive than the principal legislation. In that situation, it is our view that Rule 4 should be interpreted widely in order to accord to it a more meaningful and practical interpretation which is in line with the spirit behind the E enactment of s 11(2) of the principal legislation. In that light we are satisfied that the learned judge correctly came to the conclusion that the award was forwarded by registered post which as we have indicated should also include the DHL system which was used in this case. By parity of reasoning we are also in agreement with the learned judge that the filing of the award was properly done in terms of the law under s 11(2) of the Arbitration Ordinance and Rule 4. We accordingly dismiss grounds two and four.

In conclusion, we consider it appropriate to say something about one other issue which was raised in the course of submissions before us. It is not directly relevant for the purpose of determining the general issue before us, but it is intended to provide guidance to those handling such matters in the future. Dr Kapinga, learned counsel for the respondent had raised the issue as to what happens after the award has been filed. Having regard to the commentaries and authorities from India which has an identical law on arbitration to the Arbitration Ordinance Cap 15, he took the view that it is not necessary as a matter of law to have any further proceedings and ruling after the award has been received by the court. For this proposition, he referred us to the Indian cases of: Volkart Brothers v Achrajram & Others (1) and Achrajsing v Achirajram Sahmi (2).

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LUBUVA JA

A In upholding Dr Kapinga on this submission the learned judge lamented:

`This is very interesting because if the position is so then I have wasted my time and energy for nothing. I have wasted my time for merely recording a fact that the award had been caused to be filed at the instance of the B arbitrator....

As already observed, s 15 of the Indian Arbitration Act, 1899 is identical to s 11(2) of the Arbitration C Ordinance, Cap 15 of our laws. It is trite principle that in common law jurisdictions statutes which are in pari materia are interpreted similarly. There is a wealth of authority in India regarding the interpretation and application of s 15 of the Indian Arbitration Act, 1899, the equivalent of s 11(2) of the Arbitration Ordinance in Tanzania. Dealing with a somewhat similar situation in the case of D Volkart Brothers v Achrajram & others (1) the Supreme Court of India held inter alia:

`... the award was executable from the date on which it was received in this Court, namely, 21st June, 1923, and that the subsequent order in 1927 to file it was redundant and at best merely amounted to recording a fact that it E had been caused to be filed at the instance of the arbitrators'.

The principle that from the date of filing, the award is capable of being enforced as though it were a F decree was also underscored in another Indian case of Ahmed Musaji Saleji (3). The Indian legislation being in pari materia with our Arbitration Ordinance Cap 15, we see no reason for giving s 11(2) a different construction. So far in our country the practice in matters of arbitration awards is that the court is moved by an application for an order for filing which is then followed by G proceedings. On the basis of the Indian decisions we are persuaded to take the view that as a matter of law it is not necessary to conduct proceedings before an order for filing is made. In our view, the receipt of the award by the Court Registry constitutes the filing of the award. Thereafter, the court is required to notify the parties who may wish to challenge or to enforce the award in H terms of the law.

For the foregoing reasons, the appeal is dismissed with costs.

1997 TLR p173

A

NUHU MBAGA v NBC AND ANOTHER 1997 TLR 173 (HC)

Court High Court of Tanzania - Arusha
Judge Mroso J

B

CIVIL REVISION 13 OF 1997

17 June 1997

Flynote

Civil Practice and Procedure - Court - Jurisdiction - Resident magistrate - Deserving cases may be filed in court of resident magistrate C

-Headnote

The applicant had brought a suit against the respondent and although the plaint had correctly been entitled `in the court of the resident magistrate', the registry decided to open the case in the District Court. The district magistrate rightly realised that he had no jurisdiction to try the matter which was D outside his territorial jurisdiction and returned the case file to the resident magistrate in charge who dismissed the suit and remarked that it had to be filed at Babati District Court.

Held:

The magistrate had misconstrued a letter from the district registrar to the resident magistrate in charge of the court of the resident magistrate of Arusha. The correct import of that letter was not E that no case which could have been filed in the District Courts would be filed in the court of the resident magistrate: the law allowed deserving cases, even from the districts, to be filed in the court of the resident magistrate who had jurisdiction throughout the region. The directive was aimed at cases from the districts which were filed at the court of the resident magistrate for improper ulterior motives. The dismissal order had to be quashed. F

Case Information

Order accordingly.

No cases referred to. G

[zJDz]Judgment

Mroso J:

One Nuhu Yatera Mbaga brought a suit in the Court of Resident Magistrate, Arusha against the National Bank of Commerce and a firm of Auctioneers known as Nakara Auction Mart of Dar es H Salaam. The suit related to a house in Babati which belongs to Mr Mbaga which the defendants in the case allegedly threatened to sell without any justification.

The resident magistrate in charge of the Court of Resident Magistrate at Arusha assigned the case to a distict magistrate, one Mr Mbuge. The district magistrate rightly realised that he had no I jurisdiction to try a dispute the subject matter of which was outside his

A territorial jurisdiction, not to say that he does not sit in the Court of Resident Magistrate. Incidentally, although the plaint in the case was correctly titled `In the Court of Resident Magistrate' the Registry decided to open the case in the District Court of Arusha. This is a recurring careless mistake and the resident magistrate in charge should ensure that her Civil Registry staff know the B difference between the District Court of Arusha and the Court of Resident Magistrate for Arusha region and that cases are filed and opened in the correct registry.
Mr Mbuge, on realising that he had no territorial jurisdiction, returned the case file to the resident C magistrate in charge for reassignment to a resident magistrate who would have requisite jurisdiction.
On 23 May 1997 the resident magistrate in charge wrote thus in the case file:
D `Court: Its very unfortunate that it was an oversight when I assign (sic) this matter to D M Mbuge. In fact I have noted with concerned (sic) the NBC Branch is situated at Babati District, that being the case the Plaintiff ought to file his suit at court of competent jurisdiction and in this respect its Babati District Court unless the plaintiff apply for leave E at the High Court to file his case in the RM's Court Arusha. This court was once minded by his Lordship's (sic) Chief Justice's Circular that suits should and must be filed where the cause action arose and RM's Court was warned and directed not to admit cases/suits from Districts. They are to be filed in their respective Districts. for that F reason the present suit plus Misc Civil Application is dismissed and the same to be filed at Babati District Court.'
After his suit and a pending application were dismissed Mr Mbaga complained to the judge in G charge of the High Court at Arusha substantially saying he has been penalised on the basis of an alleged circular from the Chief Justice of which the public are not aware.
H With respect, Mr Mbaga is not alone for being ignorant of the alleged circular from the Chief Justice, I, too, am not aware of such a circular. What was referred to as a circular from the Chief Justice apparently is a letter with reference No DR.AR/69/Vol.III/7 dated 10 April 1996 which the District Registrar wrote to the resident magistrate in charge of the Court of Resident Magistrate, I Arusha. The substance of the letter is that the Chief Justice who had been visiting some district courts of the Arusha region had received com-

plaints that some people in the districts who had money had been opening cases against their A adversaries at the Court of Resident Magistrate, Arusha knowing that because of financial inability the other parties to the case would not be able to appear in court at Arusha. Because of that ex-parte judgments would be given against them on default. After he received those complaints the Chief Justice directed the District Registrar to write to the resident magistrate in charge B `kukutahadharisha kuhusu mtindo huu wa baadhi ya watu. Aidha, inategemewa kuwa mara upatopo maagize haya, hakuna kesi za aina hiyo zitakazofunguliwa kwenye mahakama yake badala ya huko Wilayani'. (My underlining.) C
The words which I have underlined are significant. The Chief Justice did not direct that no case which could have been filed in the district courts would be filed in the Court of Resident Magistrate. Indeed, the Chief Justice could not have made such an administrative direction

because that would fly in the face of the law. The law allows deserving cases, even from the districts to be filed in the D Court of Resident Magistrate which has jurisdiction throughout the region. The directive of the Chief Justice was aimed at the cases from the districts which are filed at the Court of Resident Magistrate for improper ulterior motives and the resident magistrate in charge was being urged to E be on the lookout for such cases and send them right back to the districts to be filed there.

It seems clear to me that the learned Principal Resident Magistrate, who is the resident magistrate in charge, misconstrued the import of the District Registrar's letter to mean that the Chief Justice F had slapped a complete ban on civil cases from the districts being filed in the Court of the Resident Magistrate `unless leave of the High Court' was obtained!

The case and application which the learned Principal Resident Magistrate dismissed related to G defendants who would not fail to appear in Court at Arusha because of financial incapacity. The Board and top management of the first defendant are in Dar es Salaam and their zonal office is at Arusha. The second defendant is said to be of Dar es Salaam. So, in fact, the Court of Resident Magistrate at Arusha would be the most convenient venue for all the parties. The Principal Resident H Magistrate, therefore, erred in dismissing those cases for the reasons she gave.

Using the revisional powers of this court under s 44(1)(a) of the Magistrates' Courts Act 1984 I quash and set aside the dismissal order. The case should be properly opened in the Court of I Resident

1997 TLR p176

A Magistrate at Arusha as the plaint correctly shows and proceed according to law.

1997 TLR p176

B

GEORGE SHAMBWE v ATTORNEY-GENERAL AND ANOTHER 1997 TLR 176 (CA)

Court	Court of Appeal of Tanzania - Dar es Salaam
Judge	Nyalali CJ, Kisanga JJA and Lubuva JJA

C

CIVIL APPEAL 24 OF 1997

D 19 June 1997

(An appeal from the ruling of the high Court of Tanzania, Mbeya, Mwipopo J)

Flynote

E Civil Practice and Procedure - Hearing - Non-appearance of party - Dismissal of election petition - When granted

-Headnote

The appellant appealed against the dismissal of his election petition for non-appearance and want F of prosecution. The appellant had instituted an action seeking to nullify the election results by which the second respondent had been elected as a member of Parliament for the Mpanda East constituency. The court scheduled the case to be continuously heard between 15

October 1996 and 10 December 1996. The commencement date was pushed to 16 October for the convenience of the court and thereafter to 17 October at the request of the appellant who had transport G difficulties and sent a police message to the court to this effect. He then sent a second message to the effect that his mother had passed away and expected to arrive in time for proceedings on 20 October. The trial court then set down the hearing for 21 October. The appellant sent a third police message stating that he expected his mother's funeral arrangements to have been concluded and H he would be available on 23 October. The court then on 22 October directed the matter to commence on 23 October. When on 23 October the appellant did not put in an appearance the court directed that the matter be adjourned until 29 October for the issuing of a dismissal order which was granted on 29 October in the absence of the appellant.
On appeal,
Held:
I (i) The court was acting within the scope of its earlier order when it
1997 TLR p177
dismissed the petition and it was justified in doing so because the appellant must have A been aware of the hearing date but failed to appear;
(ii) Any difficulties which the appellant may have had with his legal representatives had had nothing to do with his non-appearance. The trial judge had correctly dismissed the petition. B
Case Information
Order accordingly
No cases referred to.
The appellant appeared in person.
Salula, Kilindu and Mselem for the respondent. C
[zJDz]Judgment
Nyalali CJ:
This is an appeal by one George M Shambwe, hereinafter called the appellant against the ruling of the High Court at Mbeya, Mwipopo J delivered on 7 March 1997 in favour of the Attorney-General D and one Peter Sigela Nswima, hereinafter called the first respondent and second respondent respectively. The ruling was on an application made by the appellant seeking to restore the appellant's election petition previously dismissed by the same High Court for non-appearance and want of prosecution. The appellant has appeared and conducted the appeal in person, whereas Mr E Salula, learned Senior State Attorney, has represented the first respondent. Two learned advocates, namely, Mr G M Kilindu and Mr Mselem have represented the second respondent. The Memorandum of Appeal contains four grounds of appeal which state as follows: F
`1. The learned trial judge on 24th October, 1996 having specifically fixed the matter for mention on the 29th day of October 1996, consequently proceeded to dismiss the same on the very day meant for mention in contravention of his own order which he categorically made in court on 24th October 1996 thereby making G an error in law.

2. The learned trial judge failed to act judicially for determining and delivering the ruling on the subject matter on the 29th October 1996 in my absence and also the absence of my advocates, without and before fixing the exact hearing date contrary to the law, thereby making also an error in law. H

3. The learned trial judge having sensed that there was a professional misconduct on the part of my former advocates, M/s Lamwai and Co Advocates, of abandoning appearance and communication with the court in relation to the prosecution of my election petition he erred in fact in not finding this to be a reasonable I cause which prevented me appearing in court as required.

A 4. The learned trial judge having graciously granted me time until the 29th October 1996 to prosecute my case and after having been made aware of my voluminous transport problems in Morogoro, Nyololo (Iringa) and Mbeya as per the sworn affidavit and the oral submission of the learned advocate A Kagambo, he erred in fact in not assimilating and evaluating the FIRE INCIDENT gutting my vehicle in the Mbeya Municipality on the 28th October 1996 at 7.30 am and the same vehicle having been repaired by Mzee Mwankusye of Seba B Garage and one Mhgama of Mwakyoma Auto Works both within the Mbeya Municipality at Mwanjelwa on 28th, 29th and 30th of October 1996 a situation which prevented me to arrive in Mpanda before the 29th C October 1996 the day he dismissed my case unlawfully.'

D From the proceedings both in this court and the court below, it is apparent that there is common ground between the parties that the appellant had instituted in the High Court at Mbeya, an election petition, seeking to nullify the election results by which the second respondent was declared duly elected as a member of Parliament for the Mpanda East Constituency. On 3 July 1996, after consultations with and in the presence of the appellant and counsel for the first and second E respondents, the Court scheduled the case to be continuously heard between Tuesday 15 October 1996 and Tuesday 10 December 1996 at Mpanda. For various reasons however, the hearing of the F case did not take off as scheduled until the court dismissed the petition on 29 October 1996.

To begin with, the commencement date of hearing was pushed to 16 October 1996 to allow Mwipopo J to welcome Justices of the Court of Appeal who came to Mbeya on Court of Appeal circuit. Thereafter the commencement date of hearing was pushed to 17 October 1996 at the G request made by the appellant in a police message in which the appellant informed the trial court to the effect that his motor vehicle had broken down at Mikumi on his way to Mpanda. A second police message from the appellant reached the trial court on 16 October to the effect that the appellant's mother had passed away the day before with the result that the appellant expected to arrive in H Mpanda on 20 October after attending to his mother's funeral. The trial court obliged and made an order on 16 October 1996 pushing the commencement date of hearing to 21 October 1996 so that the appellant could be in a position to attend.

A third police message was sent by the appellant to the trial court requesting for the hearing to I commence on 23 October 1996 as the

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NYALALI CJ

appellant expected to complete his mother's funeral rites on 19 October. The court reluctantly A obliged and by its order made on 22 October 1996, directed the hearing to commence the following day of 23 as requested by the appellant.

It is also common ground that when 23 October came, there was no appearance by the appellant or anyone authorized to appear on his behalf. There is not dispute that the appellant had retained B the services of Mr Alfred Kagambo, learned advocate, before 17 October 1996. Furthermore, there is no dispute that after the failure of the appellant to appear on 23 October, the trial court was moved by counsel for the first and second respondents to dismiss the petition under Rule 22(1) of the Election Petition Rules, 1971. The Court on 24 October reluctantly declined to dismiss the C petition, and stated, inter alia:

`Since the petitioner has abandoned even his previous decorum of at least sending police messages in pretence for caring for the petitioner's wellbeing, ie continuance I hereby slash one week from his ration (quota) of three D weeks period within which the petitioner is allowed to prosecute his petition. That means that if the petitioner or his advocates do not turn up in court at Mpanda until Tuesday 29th October, 1996 this petition will be dismissed as prayed by the respondents on that day ...' E

The trial court further proceeded to direct that, `This petition therefore, is adjourned till Tuesday 29th October, 1996 for any issuance of a dismissal order then, as explained above. If the petitioner turns up before Tuesday 29th October 1996, he is free to move the court in writing to have the court F convene for him to start prosecuting his petition without his own portion of three weeks maximum period granted to him hereinabove, ie up to Tuesday 5th November, 1996.' The court concluded by fixing the case for mention on 29 October 1996. That day came but neither the appellant nor his G advocate appeared. The court consequently dismissed the petition with costs.

Thereafter on 18 November 1996, the appellant filed an application in the High Court seeking to restore the dismissed petition. The application was supported by affidavit. Counter affidavits were H filed for the first and second respondents. After hearing both sides, the High Court, Mwipopo J dismissed the application. Hence this appeal. We propose to deal with the grounds of appeal as they appear in the Memorandum of Appeal.

With regard to ground No 1 we are satisfied that the correct position portrayed in the facts that the I period between Tuesday

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NYALALI CJ

A 15 October 1996 and Tuesday 19 December 1996 had been scheduled specifically for continuous hearing of the case at Mpanda, and that when the appellant failed to appear on 23 October 1996 for hearing at Mpanda, the case was adjourned to the 29th of that month. What has to be determined within this factual context is the event which was envisaged to occur on

that date. B The appellant contends that since the case was fixed for mention on that day, then in law or practice, the case was meant to come up only for orders and the court had no powers to dismiss the petition for non-appearance or non-prosecution. Counsel for the first and second respondents argue to the contrary to the effect that the court had powers to dismiss the petition on those C grounds on the basis that the appellant knew that the case was fixed for continuous hearing over a period of time, including 29 October 1996, and on the basis that the appellant decided to cut off communication with the court after his third police message. Furthermore, counsel contend that D since the trial court on 24 October adjourned the case for `any issuance of a dismissal order' if the appellant failed to appear on 29 October, the only order or orders that could be made when the E case came up that day in default of appearance by the appellant, was the dismissal order.

We agree with counsel for the first and second respondents that the Court was acting within the scope of its previous order when it dismissed the petition and that it was justified in so doing F because the appellant must have been aware of the hearing date but failed to appear.

As to the second ground of appeal, we are satisfied that it has no merits in view of the fact that the appellant must have known that the case was due for continuous hearing unless the court ordered otherwise either on request by the parties or on its own motion.

G The third ground of appeal also seems to us to have no merits in the light of the fact that the appellant already had the services of Mr Alfred Kagambo, learned advocate, before 17 October 1996. Thus any troubles that appellant might have had previously with M/s Lamwai and Co Advocates, had nothing to do with appellant's failure to appear at Mpanda either on 23 or on 29 H October. We may also point out here that the appellant's conduct in cutting off communication with the court after the third police message, is incomprehensible, to say the least, in the light of his assertion to the effect that after appellant's motor vehicle broke down on 20 October, both the appellant and his advocate realised that they were in no position to make it to Mpanda in time for I court appear-

ance on 23 October, and that they foresaw the case being dismissed on that day. Do the appellant A and his advocate expect a reasonable tribunal to accept that the appellant and his advocate decided to turn round and travel back to Dar es Salaam through Morogoro township without dispatching a police message either from Mikumi or Morogoro requesting for an adjournment in the manner the appellant had successfully done on previous occasions? We are satisfied that no B reasonable tribunal can accept this story as true. The trial High Court was thus correct in rejecting it.

The fourth ground may be disposed of very quickly basically in the same manner as the third C ground. It is incomprehensible and unreasonable to accept that the appellant and his advocate decided not to communicate their misfortune of the fire incident to the court either at Mpanda or at Mbeya, where the incident occurred and where the High Court has its usual venue.

In the final analysis therefore, we are fully satisfied that the learned trial judge was correct in D dismissing the petition with costs on 29 October 1996 and was also correct in subsequently

rejecting the application to restore or re-admit the petition. Consequently, we dismiss this appeal with a certificate for costs for one advocate for each respondent. We order accordingly. E
1997 TLR p181
F

HALIMA ADEN v ALI FUNGO 1997 TLR 181 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Kaji J

G
MISCELLANEOUS CIVIL CAUSE 114 OF 1996
26 June 1997
Flynote
Civil Practice and Procedure - Costs - Whether taxing master functus officio after making a decision in the H absence of the other party
Civil Practice and Procedure - Costs - Whether Civil Procedure Code of 1966 can be applied together with the Advocates Remuneration and Taxation of Costs Rules 1991 (GN 515/91) I
-Headnote
The senior resident magistrate dealing with a bill of costs as a taxing officer
1997 TLR p182
A was faced with two issues which were referred to the court for clarification apparently under Order XLI of the Civil Procedure Code 1966. The two issues were: (a) Whether the taxing master was functus officio after making a decision in the absence of the other party; and (b) whether the Civil Procedure Code of 1966 could be applied together with the Advocates Remuneration and Taxation of Costs Rules 1991 (GN 515/91).
B Held:
(i) Where a taxing master taxes a bill of costs ex-parte he is not functus officio as far as application for setting it aside is concerned. If there was no express provision in the Code for setting aside an ex-parte application the court could use its inherent powers under s 95 CPC unless there was a provision in the Advocates Remuneration and Taxation of Costs C Rules 1991 to the contrary;
(ii) The Civil Procedure Code 1966 could be applied together with the Advocate's Remuneration and Taxation of Costs Rules 1991 where appropriate.
Case Information
D Order accordingly.
No cases referred to.
[zJDz]Judgment
Kaji J:

E The learned Senior Resident Magistrate dealing with a Bill of Costs as a Taxing Officer was faced with two issues, namely:

(1) Whether a Taxing Master is functus officio after making a decision in the absence of the other party.

(2) Can the Civil Procedure Code 1966 be applied together with the Advocates Remuneration F and Taxation of Costs Rules 1991 (GN 515 of 1991)?

It all started as follows:

On 13 March 1996 the applicant/decree holder Halima Aden filed a Bill of Costs in an amount of Shs G 6,289,260/= through her learned counsel Dr Lamwai. The same was fixed for taxation on 29 March 1996.

On the taxation day the applicant's learned counsel was absent, apparently without notice. The H respondent/judgment debtor Ali Fungo who had been served through his advocate Mr Kambamwene was also absent without notice. Neither Kambamwene nor anybody from his chambers appeared. The applicant applied orally to proceed ex-parte whereby her oral application was granted. The Bill of Costs was heard ex-parte whereby it was taxed and allowed at Shs 6,289,260/= as presented.

I Judgment debtor was alerted to this fact. He attempted to have

the ex-parte taxation set aside through his advocate Kambamwene but the decree holder's learned A counsel resisted and raised some preliminary objections which included the above issued.

The learned Taxing Master held that since the taxation proceeded ex-parte he still had power to set it aside just as any order. He further held that his powers to set it aside are derived from the Civil B Procedure Code 1966 and that since GN 515 of 1991 does not have any provision for setting aside an ex-parte taxation the Civil Procedure Code 1966 is applicable in such situation.

However he was not sure whether what he had held was right. He therefore referred the matter to this court for clarification apparently under Order 41 of the Civil Procedure Code 1966. C

I have carefully considered the arguments raised by the learned counsels before the trial court. I have also carefully considered the opinion of the learned Taxing Master.

It is my considered view that when a Taxing Master taxes a Bill of costs ex-parte he is not functus D officio as far as an application for setting it aside is concerned just as is the case with any other ex-parte decisions in civil matter. If there is no express provision in the Civil Procedure Code 1966 for setting aside an ex-parte taxation the court can use its inherent powers under s 95 Civil Procedure Code unless there is a provision in the Advocate's Remuneration and Taxation of Costs E Rules 1991 to the contrary.

As far as application of the Civil Procedure Code is concerned the Civil Procedure Code is the enabling law governing the procedure in all civil matters before the High Court, courts of Resident Magistrates and District Courts unless expressly excluded by any provision of any written law F concerned with a particular matter. This is provided for under s 2 of the Civil Procedure Code 1966.

Taxation of a Bill of Costs is a civil matter. Taxation of a Bill of Costs before a Resident Magistrates Court is governed by the Advocate's Remuneration and Taxation of Costs Rules 1991 (GN 515 of G 1991). There is no provision in those Rules expressly excluding the application of the Civil Procedure Code where its application would be relevant.

It is therefore my holding that a Taxing Master is not functus officio after taxing a bill of costs ex-parte as far as an application to set it aside is concerned and that the Civil Procedure Code H 1966 can be applied together with the Advocate's Remuneration and Taxation of Costs Rules 1991 where appropriate.

1997 TLR p184

A

TANZANIA OLYMPIC COMMITTEE v A SIMBAULANGA 1997 TLR 184 (CA)

Court	Court of Appeal of Tanzania - Dar es Salaam
Judge	Makane JJA, Ramadhani JJA and Lubuva JJA

B

CIVIL APPEAL 6 OF 1996

Flynote

C Civil Practice and Procedure - Pleadings - Amendment of - Incorrect annexure attached to plaint.

-Headnote

In an appeal against the decision of the High Court which had entered judgment against the appellant under Order VIII Rule 14(1) it appeared that there had been confusion between the parties as to the annexures to certain documents in the pleadings.

D Held:

As long as the appellant had not been served with the correct annexure he could not have meaningfully responded to the amended plaint or decided to rely on the original written statement of E defence. It was therefore inappropriate in the circumstances to apply Order VIII Rule 14(1).

Case Information

Appeal allowed.

No cases referred to.

F El-Maamry for the appellant.

Maira for the respondent.

[zJDz]Judgment

Makame JA:

The present respondent, Prof Adolphe Simbaulanga, sued the present appellant, Tanzania Olympic G Committee, for a sum of money in connection with some interpretation work the respondent had done at Morogoro during a wrestling seminar. Apparently Prof Simbaulanga is proficient in the French language.

In this appeal the parties retained the same counsel they had in the court below: Mr Said H El-Maamry and Mr Maira, learned advocates, for the appellant and the respondent respectively.

In the original plaint, filed on 27 February 1992, the respondent asked for the principal sum of Shs 440 000/= but this amount transformed into Shs 3,598,500/= in an amended plaint filed in March 1993. Judgment for the higher sum was entered in favour of the present respondent by Mackanja J I on 8 September 1994 under Order 8 Rule 14(1) of the Civil Procedure Code 1966. An

application for Stay of Execution was allowed by Omar JA on 27 April 1995 and apparently no A reference was taken from that decision.

There is no controversy that the appellant did not file an amended Written Statement of Defence. Mr El-Maamry submitted, however, that Mackanja J should not have proceeded the way he did and B entered judgment for the plaintiff, for one thing because he, Mr El-Maamry could not have filed an amended Written Statement of Defence because the amended plaint, as served upon his client, was incomplete in that it did not have an important document, annexure C, to the amended plaint; and for another, because, in any event, that was no occasion for Mackanja J to proceed ex-parte C the way he did because there was a Written Statement of Defence, which took the matter out of the ambit of the Rule 14 of Order 8 the learned judge purported to apply. Mr El-Maamry further argued, for good measure, that he was under no necessary obligation to file an amended Written Statement D of Defence. What Mapigano J had done was merely to grant him permission to file an amended Written Statement of Defence, if any: He did not order him to do so necessarily. He asked for leave just in case he wanted to amend. E

On his part Mr Maira submitted that the respondent was served and that Mr Wambali who represented the respondent in court (on 26 May 1993) conceded as much. He argued also that while it was indeed optional for the appellant's counsel to file an amended Written Statement of F Defence, counsel took that option and so, if he changed his mind, he should have indicated that he was not going to exercise it, in the event. According to Mr Maira, the appellant had abandoned the original Written Statement of Defence for otherwise he would have indicated that he was going to rely on it to contend the amended plaint. Mr Maira also urged that Mackanja J rightly acted under G Order 8 Rule 14(1).

We have carefully considered the chronology of events and we are satisfied that the rather frequent change of counsel might have helped to blur things. When on 26 May 1993 Dr Lamwai held the brief for Mr Maira he was wrong to assert that that would be the third extension of time for filing the H amended Written Statement of Defence. It would have been only the second, the only other one being on 21 April 1993 the first mention after Mapigano J's order that Mr El-Maamry be served with a copy of the amended plaint. Also there was in any event no question of re-service of annexure C I three weeks previously as there had not been any earlier service. We

MAKAME JA

A are satisfied that both learned counsel, Dr Lamwai and Mr Wambali did not really appreciate at that stage that there would be two annexures C. Mr El-Maamry did point out to the Registrar of the High Court, in writing, that he had been furnished with the wrong annexure C, that is 27 March 1991 letter from the appellant, and not the right annexure C, a letter from the Civil Service Department B dated 8 February 1993, which is evidently what had made the amendment to be considered necessary. Indeed the respondent must have contributed to the confusion because, even in this Court's file, what appears as annexure C to the amended plaint, and stapled to the latter, is still the C letter from the appellant. We agree with Mr El-Maamry that as long as he was not served with the right annexure C he could not meaningfully have responded to the amended plaint or decide to rely on the original Written Statement of Defence. It was therefore inappropriate in the circumstances to D apply Order 8 Rule 14(1).

We accordingly allow the appeal and direct the High Court to order that the right annexure C to the amended plaint, that is the letter from the Civil Service Department dated 8 February 1993, be served on the appellant, the original plaintiff, and that he be given time to file an amended Written E Statement of Defence. We order also that costs for this present appeal should follow the event.

1997 TLR p187

A

[zRPz]ZAINAB SOMJI AND ANOTHER v MINISTER OF HOUSING AND LANDS 1997 TLR 187 (CA)

Court Court of Appeal of Tanzania - Zanzibar

Judge Makame JJA, Ramadhani JJA and Lubuva JJA

B

CIVIL APPEAL 27 OF 1997

4 July 1997

(Appeal from the judgment of the High Court of Zanzibar at Zanzibar, Dahoma J) C

Flynote

Civil Practice and Procedure - Appeals - Requirements - Order III Rule 3 of the Zanzibar Civil Procedure Decree Cap 8.

-Headnote

At the hearing of an appeal against the rejection of an appeal by the High Court of Zanzibar both D parties expressed the fact that they were experiencing difficulty in respect of the further hearing of the appeal because of the inadequacies of the record. The parties had difficulty particularly with determining which part of the proceedings was a judgment and which was not. E

Held:

(i) A glance through the record revealed a confusing state of the matter as correctly observed by counsel;

(ii) While there was no indication in writing to show that it was either a judgment, ruling or order of the learned judge, the judge had taken the view that as the suit was being F instituted by the appellant, a woman, through her authorised attorney, the power of attorney was not acknowledged in terms of Order III Rule 3 of the Zanzibar Civil Procedure Decree Cap 8. Having taken that view, the judge was of the opinion there was nothing before him and the appeal was not properly before the court and it ws accordingly rejected. This was an interlocutory order and on this basis the decree was extracted and duly signed by the G judge;

(iii) The judge's view on the power of attorney was based on oversight or in complete ignorance of the proviso to Rule 6 under which, if a woman resided outside Zanzibar, it was not necessary to acknowledge the power of attorney in the way the learned judge H envisaged. The power of attorney could be received and acted upon in Zanzibar;

(iv) The Court invoked its powers under Rule 3 and dispensed with the requirements of Rule 89 and quashed the decision of the High Court.

Case Information

Order accordingly.

No cases referred to. I

1997 TLR p188

A Patel for the appellant.

Uhuru Khalfan for the respondent.

[zJDz]Judgment

Lubuva JA:

In this appeal Zainab J M Somji through her authorised attorney is appealing against the decision of B the High Court of Zanzibar (Dahoma J) dated 26 February 1997. In Civil Case No 54 of 1996 before the Regional Court at Vuga, Zanzibar, the appellant had filed a suit against the respondent seeking vacant possession of house No 3362 situated at Mwembeladu within the municipality of C Zanzibar. The respondent had leased the house to tenants who were staying in it. At the commencement of the hearing of the suit before the Regional Court, a preliminary objection was raised by the respondent on the grounds that the suit does not disclose cause of action and that the D suit is time barred. After analysing the submissions of both parties, the learned regional magistrate overruled the objection. It was further held that as there were no triable issues, judgment was passed in favour of the appellant. An order for vacant possession of the house was issued. From that decision, in a three point memorandum of appeal the respondent appealed to the High E Court of Zanzibar. The learned judge, held that the appeal was not properly before the Court, he rejected it. This appeal is against that decision.

In this appeal, the appellant and the respondent are respectively represented by Mr Aja Patel, F learned counsel and Mr Uhuru Khalfan learned State Attorney before the Courts below. The memorandum of appeal filed by Mr Patel, comprised four grounds of appeal. Before us, at the commencement of the hearing of the appeal, Mr Patel, learned counsel in what appeared to us as candid professional frankness confessed that he was in difficulty as to how to proceed with this G appeal. This is because, he said, the manner in which the appeal was determined and the decision arrived at by the learned judge was confusing. Upon the Court's inquiry as to which

part of the record is referred to as the judgment, Mr Patel was quick to respond to the effect that, that is one of H the aspects which is indicative of the confusion surroundings this case.

Following Mr Patel's submission on the alleged confusion in the case, the Court invited the learned counsel for both parties to address us on the alleged confusion and the unsatisfactory way in which I the appeal was handled at the High Court of Zanzibar and how to proceed with the appeal. In further elaboration, Mr Patel,

learned counsel referred to pp 40 and 41 of the record of appeal. That part of the record concerns A the proceedings of the hearing of the appeal on 26 February 1997. From the proceedings he said, two things emerge. Firstly, the first paragraph at p 40 to the effect that the suit was not instituted according to Ord III Rule 3 of the Civil Procedure Decree regarding the acknowledgement of the B power of attorney was not stated by him, Mr Patel or Mr Uhuru. He said it was introduced by the Court. Secondly, the decision by the learned judge rejecting the appeal does not indicate whether it is a judgment, ruling or order. For that reason, he said, it was difficult to show which part of the C proceedings is the judgment and which is not. He further pointed out that the appeal having been rejected in such a manner the hearing of the appeal before the High Court on merit was left unheard. Consequently, he submitted, it is not clear as to the effect of the High Court decision on the Regional Magistrate's decision. He invited the Court to set aside the decision of the High Court D so that the decision of the Regional Court in which the appellant was successful could be executed.

Mr Uhuru, learned State Attorney also addressed us. He supported Mr Patel on the fact that the issue relating to the power of attorney was introduced by the Court, it was not one of the grounds of E appeal. He was of the firm view that as there was no judgment indicated in writing, the appeal was not properly before this Court because Rule 89(2)(iv) of the Court's rules was not complied with. That is, no copy of the judgment or order was contained in the record of appeal. He urged the Court to invoke Rule 3 and order the matter to be remitted to the High Court with direction to hear F the appeal on merit.

We have given close and anxious consideration to the submissions by the learned counsel for both parties. A glance through the record at pp 40 and 41 reveals a confusing state of the matter as G correctly observed by the learned counsel. We agree with the submission by Mr Patel that the decision of the learned judge on appeal is in such a format that it is difficult to tell where the proceedings of the appeal end and the start of the judgment, ruling order or decision on the matter. This can be seen from the following extract at p 41: H

> `Mr Patel:
>
> Mr Uhuru should have taken an objection as sorn (sic) as he first represented the appellant on 7.11.1995.
>
> On hearing both the advocates the Court is still of the opinion that the suit was instituted contrary to Ord III r. I 3 of Civil

A Procedure Rules and therefore this appeal is not before the Court and is rejected.
Sgd. Saleh A. Dahoma -- Judge
26/2/1997.'

B While we agree that there is no indication in writing to show that it was either a judgment, ruling or order of the learned judge in essence or perception of the matter is as follows: That the learned judge took the view that as the suit was being instituted by the appellant, a woman through her authorised attorney, the power of attorney was not acknowledge in terms of Ord III Rule 3 of the C Zanzibar Civil Procedure Decree, Cap 8. With that view, the learned judge therefore held that there was nothing before him ie the appeal was not properly before the Court. Consequently, the appeal was rejected. it is to be observed however, that as can be seen from the extract above, the learned D judge did not say this in so many words. That in our understanding was the import of the decision. Both Mr Patel, learned counsel and Mr Uhuru, learned State Attorney had expressed the view that the decision as extracted, was confusing, it was not easy to tell if it was a judgment, order or ruling. On this, we think it is relevant to examine closely the submissions by Mr Patel and Mr Uhuru on the E issue of the validity of the power of attorney. It was their submission that it was brought up by the learned judge himself at the commencement of the hearing of the appeal. That to our minds, is indicative of the learned judge's anxiety to ensure himself of the propriety of the acknowledgement F of the power of attorney. Before going into the merits of the appeal, the learned judge made a decision on that point. Though it was not indicated, we are firmly of the view that it was an interlocutory order in which the learned judge decided to reject the appeal, the subject of complaint G in this appeal. It was on the basis of this order that the decree was extracted and duly signed by the learned judge.

Next we intend to deal with the propriety of the interlocutory order issued. As pointed out earlier, it H was the view of the learned judge that under Ord III Rule 3 of the Civil Procedure Decree, as the power of attorney was not acknowledged, it was invalid and so, he rejected the appeal. This we are convinced was done by the learned judge by oversight or in complete ignorance of the proviso to Rule 6 of Ord III of the Civil Procedure Decree. under that proviso, if a woman resides outside I Zanzibar which was then referred as to the Protectorate, it is not necessary to acknowledge

the power of attorney in the way that the learned judge envisaged. It is enough to have an A authenticated power of attorney here in Zanzibar. In this case, it is our view that the power of attorney could be received and acted upon here in Zanzibar. With respect, the learned judge erred and misdirected himself in law in rejecting the power of attorney on the basis of Ord III Rule 3 of the Civil Procedure Decree. B

Finally, we come to the issue whether Rule 89(2)(iv) was complied with. This is important because if the rule was not complied with then the appeal would not be competently before us. Mr Uhuru, learned State Attorney was of the view that Rule 89(2)(iv) was not complied with. He however C invited us to invoke Rule 3 in order to dispense with the requirement of Rule

89. We think Mr Uhuru is right in that suggestion. In view of the circumstances of the case, we are in agreement with Mr Uhuru in invoking our powers under Rule 3 and dispense with the requirement of Rule 89. This we have done in dealing with this appeal. D
Consequently, on a proper application of the law and the acceptance of the power of attorney which was rejected in error, the fall back position is that the appeal which was before the High Court would still remain undetermined on merit. Accordingly, for the foregoing reasons the decision of the High E Court of 26 February 1997 rejecting the appeal is quashed and set aside. It is further ordered that the matter be remitted to the High Court with direction to hear the appeal on merit by another judge. It is so ordered.
In conclusion, we wish to make the following observation. In order to avoid confusion of this kind F and time wasting inconvenience, judicial officers particularly at the Regional and High Court level would well be advised as far as possible to conform with the elementary guidelines set out under Ord XXIII Rule 3 of the Civil Procedure Decree in writing Court decisions. G
1997 TLR p192
A
[zRPz]JOSEPH LOMAYANI AND OTHERS v MELEKIZEDECK MICHAEL 1997 TLR 192 (HC)

Court High Court of Tanzania - Arusha
Judge Mroso J

B
CIVIL APPEAL 11 OF 1997
21 July 1997
Flynote
C Civil Practice and Procedure - Appeals - Duty of appellate court where there is no judgment -Headnote
The appellant appealed to the High Court from a decision of the district court which had ordered that a case which originated in the trial primary court and which was before the district court on appeal D be tried de novo. The dispute between the parties concerned an alleged encroachment and after both parties had called witnesses the trial court visited the scene of the alleged encroachment and drew a sketch of it. The court decided the case mainly on the basis of its own observations during the visit to the disputed land. The district court held that the trial court had not followed the correct procedure regarding the visit to a locus in quo and nullified the proceedings and ordered a trial de E novo. On appeal,
Held:
(i) That the trial court had not so much failed to observe the necessary guidelines but rather that it had failed to discuss the evidence which had been adduced by the parties and given F a judgment based on that evidence. The substantive complaint was that there was no judgment in law from the primary court;

(ii) If the appellate court believed that there was no judgment at all it should have nullified the judgment and remitted the case to the primary court with a direction that a judgment based on all the evidence which was before it be written;

G (iii) If the appellate court found that there was a judgment but that it was unsatisfactory then it should have proceeded to consider the other grounds of appeal and evaluate the evidence and come to its own conclusion;

H (iv) The court cautioned that an order for a trial de novo should only be made in the clearest of situations.

Case Information

Order accordingly.

Case referred to:

I 1. Nizar M H Ladak v Gulamali Fazal Jan Mohamed [1980] TLR 29

Sabaya for the appellants.

1997 TLR p193

[zJDz]Judgment

Mroso J: A

This is an appeal against an order of the District Court (Mbuge DM) as a first appellate court that the case which originated in the trial primary court and which was before the district court on appeal be tried de novo. Let me give a brief background to the present appeal. B

The appellants brought a suit against the respondent in the primary court at West Meru claiming that the respondent had encroached on an area measuring about three acres of their land. Both sides called witnesses and the trial Court visited the locus in quo and drew a sketch plan of it. C

In a very brief judgment the trial primary court apparently decided the case mainly on the basis of its observations during the visit to the disputed land.

The respondent was aggrieved by that decision and appealed to the district court by filing five D grounds of appeal. The district magistrate of the first appellate court did not discuss any of the grounds of appeal.

Instead it observed that the trial Court did not follow guidelines contained in the case of Nizar M H Ladak v Gulamali Fazal Jan Mohamed (1) regarding the visit to a locus in quo by a court. Without E specifically saying so the first appellate court proceeded to nullify the proceedings and decision of the trial Court. It then ordered a trial de novo.

The appellants have filed three grounds of appeal and at the hearing the respective counsel for the parties asked and were granted leave to file written submissions. Mr Sabaya, learned advocate for F the appellants, did not meet the deadline for filing his submissions but he explained in writing his failure to beat the deadline and I have accepted his explanation for his late filing.

The first ground of appeal is that it was unnecessary for the first appellate court to order a trial de G novo because there was enough evidence on which the case could have been decided in favour of the appellants. The second ground of appeal is that having nullified the proceedings in the trial court, it was not necessary to a order a trial de novo. The first appellate court should have left it open for H the appellants to choose to institute fresh proceedings. Let me hasten to

remark that it was only the proceedings (and the decision) which were apparently nullified and not the case which was filed in the primary court, that was why the case which was still in the primary court was to be tried de novo. If the whole of the case had been I
1997 TLR p194
MROSO J
A nullified there would be nothing to be tried de novo. A fresh case would have to be filed in court.
The third ground of appeal is the error by the trial court in not taking notes when it visited the locus in quo was not so fundamental as to justify the order of a trial de novo.
B The first appellate court had the power to evaluate the recorded evidence and come to its own conclusion.
It is plain that the trial court did not discuss the relationly lengthy evidence it recorded but appeared to base its decision substantially on its observations at the locus in quo, which really means that it C relied mainly on its own `evidence' rather than on the evidence given on oath by the parties and their respective witness. It could therefore be said with justification that there was no proper judgment from the primary court. So, the crucial point really was not so much that the trial court D failed to observe the guidelines regarding a visit to a locus in quo as contained in the Nizar Ladak case (supra) which was cited by the district magistrate and the learned counsel in their respective written submissions but the glaring failure by the trial Court to discuss the evidence which was adduced by the parties and giving a decision based on that evidence. There is little doubt that there was enough evidence from both sides in the case on which a judgment and decision could have E been based. Indeed, the respondent in his grounds of appeal which he filed on the district court did not complain against the trial court in visiting the disputed land or for its failure to take notes of what was observed during the visit and asking the parties to comment, if they wished, on such notes. His F substantive complaint is that there was no judgment in law from the primary court.
What then should the first appellate court have done in such circumstances?
First, it would have to consider the ground of appeal alleging that the primary court judgment was no G judgment at all. If it agreed with that ground of appeal it would nullify the supposed judgment and remit the case to the primary court with a direction that a judgment based on all the evidence which was before the trial court be written.
H However, if the first appellant court found that there was a primary court judgment but that it was unsatisfactory then it would proceed to consider the other grounds of appeal. In doing so, as a first appellate court, it would be entitled to evaluate the entire evidence and come to its own conclusion. A dissatisfied party could then appeal to the High Court.
I I would agree with the appellants that the non-observance by the trial court of the guide lines in the Nizar Ladak case (supra) did not
1997 TLR p195
justify nullification of the entire proceedings before the trial court and the order for a trial de novo. A For that reason I quash and set aside the judgment of the district court and direct the

appellate magistrate to consider first the ground of appeal whether the primary court judgment was or was not a judgment in law and then proceed as I have indicated in this judgment. B
I would like to caution the district court as a first appellate court that an order for a trial de novo should only be made in the clearest of situations and where it is unavoidable. This is because a fresh trial entails the recalling of witnesses who may or may no longer be available, not to say that the parties are made to incur expenses and expend their time all over again. C
If I have not considered all the grounds of the appeal and the learned submissions of counsel in detail it is not out of disrespect or that they are not worthy but because I feel that it is premature in view of the direction to the district court which I made above. D
The parties to bear their own costs so far here and in the two courts below.
1997 TLR p195
E
[zRPz]SAIDI ULEDI v KALESI NGONELA 1997 TLR 195 (HC)

Court High Court of Tanzania - Mbeya
Judge Moshi J

F
CRIMINAL APPEAL 8 OF 1996
6 August 1997 G
Flynote
Criminal law - Criminal trespass - Elements of offence - Section 299(a) of the Penal Code - Knowledge of ownership
-Headnote
The appellant appealed against his conviction in a primary court for criminal trespass in H contravention of s 299(a) of the Penal Code and his sentence of Shs 1,000/= or three months' imprisonment. He contended on appeal that it had not been proved that he knew that the land belonged to the respondent. It appeared from the evidence that the land in question had been inherited by the respondent from his father who had died in 1957. In 1994 the respondent found the chairman of a village I
1997 TLR p196
A allotting the land to some of his villagers. The people occupying the land (of which the appellant was one) claimed it as their own and the case was heard in the primary court which upheld the respondent's claim.
Held:
(i) The appellant's contention that he was unaware of the respondent's title could not be B upheld he had in a manner of speaking been a party to the litigation in 1994 concerning the title to the land. It was inconceiveable that this event would have missed his attention;
(ii) The elements of the offence created by s 299(a) had been duly proven.
Case Information
Appeal dismissed.

C Case referred to:

1. Saidi Juma v Republic [1968] HCD 158

Mwangole for the appellant.

D Mrs Makuru for the respondent.

[zJDz]Judgment

Moshi J:

This is a second appeal. The primary court of Mbalizi sentenced the appellant, Saidi N Uledi, and six other persons who did not appeal, to a fine of Shs 1 000/= or three months' imprisonment in default, E consequent upon a conviction for criminal trespass, contrary to s 299(a) of the Penal Code. The matter centered on a thirty acre piece of land whose ownership was being claimed by the respondent, Kalesi Ngonela, on the one hand, and the appellant, on the other.

F The conviction and sentence aggrieved the appellant who preferred an appeal to the district court of Mbeya through the services of his learned advocate, Mr Mwangole. The appeal was dismissed, hence this second appeal which was preferred and argued before me by the same Mr Mwangole, G and resisted on behalf of the respondent by Mrs Makuru, learned Senior State Attorney.

The case for the respondent was this. He inherited the land from his father who died in 1957. He cultivated bulrush millet and reserved part of it for cattle grazing. His four witnesses (SM2-SM5) spoke in support of his claim. Solomon Mwamapasi SM2, in particular, said he witnessed the H inheritance transaction. On 12 February 1994 the respondent found the chairman of Igale village, Amanyisye Mwakalonge, allotting the land to some of his villagers. Amanyisye claimed that when he took over the village leadership in 1993 he was told that the land belonged to Igale village. The appellant and the six accused were villagers of Igale village. In consequence, the respondent sued I the chairman, Amanyisye, on behalf of his villagers,

1997 TLR p197

MOSHI J

for the land. It was Mbalizi primary court Civil Case No 19 of 1994. In that case three of the A respondent's witnesses in this case (SM2-SM4) testified. In a judgment (exh MA2) delivered on 9 May 1994 the primary court found in favour of the respondent and declared him to be the lawful owner of the land in dispute. No appeal was preferred against that decision which to date has not otherwise been reversed or altered. Then in February 1995 the respondent found the appellant and B the six accuseds cultivating the shamba. He registered a complaint against them with the appropriate village authorities who by a letter (exh MA1) dated 10 February 1995 directed the appellant and his six confederates to stop cultivating the respondent's shamba. But the appellant, who was in the forefront, refused to heed the directive, and cultivation continued. Hence the criminal C proceedings before the primary court of Mbalizi.

The case of the appellant, on the other hand, was that he inherited the land from his deceased father. Neither the appellant nor his witnesses said when. He then dished it out to the six accuseds who, with the appellant, went into occupation and started to cultivate it. Again the appellant did not D say when this took place. The third accused (SU8) said it was in 1969 whilst the seventh accused (SU12) said it was in 1991. The fifth accused (SU10) said he had been

cultivating the land for a long time. And the elder brother of the village chairman aged fifty nine years, Lusubilo Mwakalonge SU4, said he knew of shambas occupied by the appellant since 1962 but the land in dispute was not E among them. The appellant claimed that he was neither a party to Civil Case No 19 of 1994 nor aware of it. F

Both courts below believed the respondent and his witnesses and found, on the basis of, among other grounds, Civil Case No 19 of 1994, that the land in dispute belonged to the respondent, and that the appellant was aware of that case, and that he, in consequence, had no genuine claim of G right over that shamba, and finally that the appellant's guilt as charged was demonstrated beyond reasonable doubt.

Mr Mwangole preferred three grounds of appeal, as he had done in the appeal to the district court, which were to the effect, firstly, that the first appellate court grossly erred in law and in fact in H holding that the appellant knew about the dispute in Civil Case No 19 of 1994 regarding the disputed shamba and, secondly, that the learned Resident Magistrate, who heard the first appeal, erred in law in holding that the appellant had no claim of right over the land in dispute. The learned advocate submitted that on account of that I

A the appellant was neither a party to, nor aware of, Civil Case No 19 of 1994 he had a valid claim of right and that the matter ought to have proceeded as a civil case. The case of Saidi Juma v R (1) was cited and relied upon. Mrs Makuru, for her part, submitted that the appellant had no claim of right as he was, like some of his co-accuseds, aware of Civil Case No 19 of 1994 and that the B shamba belonged to the respondent. Saidi's case (supra), she argued, was distinguishable from this case in that in this case there was a valid judgment of a court of law of a civil nature in favour of the respondent while in that case there was none. And in this case, she concluded, village leaders C were involved while in that case they were not.

I have followed and considered these arguments. In the circumstances of this case I am bound to uphold Mrs Makuru's argument. With respect to Mr Mwangole, the appellant was in a way a party in D Civil Case No 19 of 1994. The allegation in that case was that the land in dispute which was the same subject-matter in this case, was the property of Igale village, and the respondent then sued its chairman on behalf of that village and all its villagers of which the appellant was among them. This would account for the fact that the village chairman had to summon some villagers to testify. It was E unnecessary, in my view, that all the villagers, including the appellant, were to testify. It sufficed that only the village chairman and the villagers to whom he was giving the land to had to testify. And with even greater respect, even assuming that the appellant was not a party in those proceedings, he was, as were his co-accuseds, quite obviously aware of that case and its outcome. The F circumstances were clearly such that he simply could not have missed it. The dispute in that case, as already stated, was over the same piece of land, and the village chairman, who was sued by the respondent, as well as the villagers who testified for the appellant in this case, and the appellant himself and his six co-accuseds, were all of the same village of Igale. It was therefore inconceivable G that this great event of that case touching upon that village, its chairman and its villagers in general, would

have missed or escaped the attention of the appellant, particularly so when, firstly, the appellant and his co-accuseds were, as they claimed, in occupation of that land and, secondly, H the village chairman, as established, was allotting that same land to some villagers. Furthermore, the entire village leadership was aware that the land in dispute belonged to the respondent, and it was most unlikely that the appellant, in the circumstances, would not have been aware of that as I well.

1997 TLR p199

MOSHI J

And as though to clinch the matter, one of the witnesses summoned by the appellant in this case A SU4, but spoke against the appellant, was the elder brother of the sued village chairman, and this was clearly indicative of that the appellant was duly aware of the dispute in Civil Case No 19 of 1994 as well as the outcome of the case. Indeed, in the circumstances, the appellant's claim that he had inherited the land from his father was, on proper reflection, an attempt to rob the respondent of his B land. His witnesses were, as demonstrated, at variance on that claim. He and his co-accuseds could not have purportedly occupied that shamba for such a long time without being seen by the respondent or by the sued village chairman for that matter. It was when they invaded the shamba in C February 1995 that the respondent, on seeing them, promptly and swiftly acted in the manner already described. The manner in which the appellant responded or reacted to the village leadership's directive (exh MA1) to stop cultivation was clearly indicative of that he was stubbornly clinging to that which he knew belonged to the respondent, rather than to that which he genuinely D believed belonged to him.

The essence of the offence under s 299(a) of the Penal Code is, firstly, that the entry must be unlawful and, secondly, that the entry must be done with intent to commit an offence or to E intimidate, insult or annoy the person in occupation. There can be no doubt in this case that these ingredients were, in the circumstances, and as demonstrated, established to the required extent. The appellant lacked a bona fide or an honest claim of right in terms of s 9 of the Penal Code when F he entered the land he knew belonged to the respondent. As amply demonstrated, he had entered the land with intention to defraud. Saidi's case (supra) was clearly distinguishable from this case in the manner pointed out by the learned Senior State Attorney. In that case there was a bona fide G claim of right which was not the case here. In this case, but not in that case, the respondent had, and still has, a valid judgment and decree of a court of law in his favour arising fro prior civil proceedings over the same piece of land in which the appellant was a party and/or of which he knew about. H

For all the foregoing reasons, I am satisfied, as was the district court, that the appellant was properly convicted and sentenced. In consequence, this second appeal fails, and it is hereby dismissed in its entirety. I

1997 TLR p200

A

[zRPz]JUMUIYA YA WAFANYAKAZI v SHINYANGA REGION COOPERATIVE UNION

1997 TLR 200 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Mapigano J

B
MISCELLANEOUS CIVL CAUSE 79 OF 1991
12 August 1997
Flynote
C Employment law - Industrial court - Powers and duties - Matter referred to Industrial Court by Labour Commissioner under s 9A(1) of Industrial Court of Tanzania Act - No final or dispositive power in such matters.
Civil Practice and Procedure - Appeals - From decision of Industrial Court - Such Court subordinate to High D Court - Section 27(1C) of Industrial Court of Tanzania Act envisages review jurisdiction of High Court to quash errors of law committed by Industrial Court.
-Headnote
The applicant sought orders quashing the decision of the Industrial Court which had ruled that it had E no power to investigate a dispute referred to it by the Labour Commissioner under s 9A(1) of the Industrial Court of Tanzania Act. Counsel for the respondent attacked the jurisdiction of the High Court to entertain the application, contending that the applicant should have proceeded by way of appeal in accordance with the provisions of the Civil Procedure Code.
Held:
F (i) The court had previously held that s 27(1C) was unconstitutional to the extent that it whittled down the right to an appeal and was inconsistent with article 13(b)(a) of the Constitution. The jurisdiction of the court to quash for errors of law on the face of the record was traditionally one which fell under judicial review which was normally sought by G way of application. It was certain that s 27(1C) envisaged such application;

(ii) On the merits of the application, the power of the Industrial Court in relation to trade disputes referred to it by the Minister under ss 4(4)(a) or 8 had to be contrasted with its H power in relation to matters referred to it by the Labour Commissioner under s 9A(1). The former power was adjudicatory whereas the latter was merely investigatory. The Industrial Court was accordingly obliged to investigate the matters referred to it by the Labour Commissioner;

(iii) The Industrial Court had erred in refusing to hold an enquiry into the matters referred to it and in taking the view that there existed no trade dispute between the parties. The I application accordingly had to be granted.
1997 TLR p201
Case Information
Order accordingly. A
Cases referred to:

1. Uganda v Commissioner of prisons, Ex-parte Matovu [1966] EA 514
2. OTTU v Attorney General and Anor [1997] TLR 30 (HC)

Kisusi for the appellant. B

Dr Lamwai for the respondent.
[zJDz]Judgment
Mapigano, JA:
Felix Luhende, Nyangaki Shilungushella, Deo Kaholwe, Charles Maziku and Michael Mhina were C employees of the Shinyanga Region Co-operative Union (1984) Ltd, the respondent herein. Their respective services were terminated on different dates between 1989 and 1990. Being aggrieved by the said terminations they took their complaints to the applicant of which they were members. The applicant reported the matters to the Labour Commissioner under the provisions of s 9A of the D Industrial Court of Tanzania Act, 1967 as amended by Act No 3 of 1990. Upon the approval of the Minister for Labour the said Commissioner duly referred the matters to the Industrial Court for enquiry, as he considered that there existed a trade dispute between the parties. He wanted the E Industrial Court to make inquiry on procedural and substantive levels, to wit, whether the respondent had followed the laid down procedures when it terminated the services of the five employees, and whether there were good causes for the terminations.
Sitting at Shinyanga to hear the dispute the Industrial Court had to rule on a preliminary legal point F taken on behalf of the respondent as to jurisdiction. The argument advanced was that the Industrial Court had no power to investigate the dispute because the five complaints were not the respondent's employees and that, therefore, the matters referred to it did not constitute a trade G dispute. In its ruling date 27 August 1991 the Court upheld the objection, the assessors dissenting, and it then pleased the Court to `dismiss the complaints and close the file'.
The applicant has come to this Court to challenge the decision and to seek two orders, the first being certiorari to quash the decision and the second being mandamus directing the Industrial H Court to hold an enquiry and then to report to the Minister responsible for Labour matters in accordance with the provisions of s 9A(1) of the Industrial Court of Tanzania Act. The validity of the decision of the Industrial Court is impugned on two grounds. The first is that the Court has no I jurisdiction at all to make a ruling, as it did, on a
1997 TLR p202
MAPIGANO JA
A preliminary objection, and the second ground is that the court erred in refusing to conduct an enquiry into the matters referred to it by the Labour Commissioner and that it had no discretion whatever to refrain from making such enquiry. Let us say right here that to us these grounds appear formidable, and it is not without significance that the respondent has not actually bothered to meet B them.
Before we proceed to consider and determine the two grounds we have to dispose of a preliminary objection which Dr Lamwai, learned counsel, has taken on behalf of the respondent as to the C competence of this court to entertain this application. Dr Lamwai has raised that point in an affidavit, and on behalf of the applicant Mr Kisusi learned counsel, has taken issue with that procedure. We cannot but agree with Mr Kisusi that it is wholly wrong for an affidavit to embody objections on points of law, and we need not point out that the question of jurisdiction is one which pertains to the D realm of law.

An affidavit is essentially a substitute for oral evidence, and should only contain statements of fact and circumstances. That being the case then we hold in common with Sir Udo Udoma, CJ in the case of Uganda v Commissioner of Prisons, Ex-parte Matovu (1), to which we have been referred, E that `such an affidavit must not contain extraneous matter by way of objection or prayer or legal argument or conclusion'.

All the same, we have deemed it desirable to make a few observations about the objection. In F support of the objection Dr Lamwai has urged the point that the High Court has no jurisdiction to grant prerogative orders against the Industrial Court, his reason being that the letter is not subordinate to the former. We have accepted Mr Kisusi's submission that what the applicant is seeking in this cause cannot strictly be called prerogative orders. We have to remind Dr Lamwai G that in our legal system remedies of certiorari and mandamus are, since 1968, simply known as orders. We have rejected Dr Lamwai's contention that the Industrial Court is not subordinate to the High Court. We have not the least hesitation in saying that it is indeed so subordinate, and we have H taken the view that that is exactly what s 27(IC) of the Industrial Court of Tanzania Act signifies, and that that is immaterial that the proceedings of that Court are sometimes presided over by a judge of the High Court. In actual fact that is precisely the say it has always been viewed.

I Dr Lamwai has also urged the point that decisions of the Industrial Court are final and cannot be challenged or questioned except

on appeal to the full bench of the High Court on points of law, and, accordingly, that the applicant A should instead have come to this court by way of appeal in accordance with the provisions of the Civil Procedure Code. We regret to say that we cannot accept this proposition.

On his part Mr Kisusi points out, correctly, that there is no provision in the Industrial Court of B Tanzania Act which says that proceedings brought to the High Court to challenge the decisions of the Industrial Court should assume the form or structure of an appeal. He also makes the point that a right of appeal from any decision must as a rule be derived from a statute, and that, therefore, C unless a statute confers the right it is not otherwise available. We are not in full accord with this expression. As we understand the law, the position in Tanzania is that the said rule no longer applies to first appeals, by virtue of article 13(b)(a) of the Constitution whereunder `the right of appeal or another legal remedy' against first instance decisions of courts of law or other bodies D which decide on a person's rights or interests founded on statutory provisions is guaranteed. And in this connection mention might be made of the recent decision of the full bench of this court in Ottu v The AG and Another (2), where it was held that s 27(IC) of the Industrial Court of Tanzania Act E whittles down the right conferred by that constitutional provision; that the section falls outside the purview of article 30(2) of the Constitution; and that therefore the section is unconstitutional and invalid to the extent that it is inconsistent with article 13(b)(a). F

Mr Kisusi is however right to contend that the jurisdiction of this Court to quash for errors of law on the face of the record is traditionally one which falls under judicial review, which is

normally sought by way of application. And we are certain that s 27(IC) envisages such application. In the G circumstances we have to overrule the preliminary objection, and we so do.

We now turn to the grounds urged in support of this application. In relation to the first ground the vital question of law is whether the Industrial Court has jurisdiction to make a final or dispositive H decision in a matter referred to it by the Labour Commissioner under s 9A(1) of the Industrial Court of Tanzania Act. Mr Kisusi puts forward the argument that the court does not enjoy such jurisdiction, be it on a preliminary point or otherwise; that all that the Court could have done in this case was to conduct on enquiry into the dispute and then submit its report on it to the Minister; and that it amounted to a wrong assumption of authority when the Court I

A purported to decide the preliminary objection in the manner it did.

Section 9A(1) deals with the matter this way:

`Subject to subsection (2), where any trade dispute exists or is apprehended, the Labour Commissioner may inquire into the causes and circumstances of the trade dispute and, with the approval of the Minister, refer any B matters appearing to him to be connected or relevant to that trade dispute to the Court whether or not the matter or dispute is a trade dispute within the meaning assigned to that expression by section 3, and the court shall inquire into the matters so referred to it and report on them to the Minister.'

C Mr Kisusi invites us to recognize that the power or function of the Industrial Court in relation to trade disputes referred to it by the Minister under s 4(4)(a) or s 8 is to be contrasted with its power in relation to matters referred to it by the Labour Commissioner under s 9A(1). He says that in the D former its function is adjudicatory, ie `to consider the dispute and make an award thereon', while in the latter its function is just investigatory, ie `to inquire into the matters and report on them to the Minister'. this is an unquestionally correct statement of the law and we embrace it. We think that the language of the statute could hardly be more plain in assigning those two distinct functions to the E Industrial Court. We hold that s 9A(1) as read together with s 15(2)(c) imposed an obligation of the Court to investigate the matters referred to it by the Labour Commissioner and report thereon to the Minister. We think and hold that it was, in a very significant sense, an arrogation of power on the F part of the Court to `dismiss the complaints and close the file'.

We come to the second ground. Mr Kisusi submits that the Industrial Court was in patent and serious legal error when it refused to hold an enquiry into the matters referred to it, upon taking the G view that there existed, in fact or in the contemplation of the law, no trade dispute between the parties. Again we are obliged to sustain this contention and we have to observe that much of what we have stated in regard to the first ground is also applicable here. The refusal of the Court to investigate the matters involved a clear disregard of the words of the statute. As we have already H noted, the simple and explicit words of s 9A(1) compelled it to inquire into those matters and report on them to the Minister, regardless of whether or not the matters

constituted a trade dispute as defined under s 3. The court's opinion on the question whether the complainants were employees I of the respondent or not should, in our view have been stated in the report to the Minister.
1997 TLR p205
In the final event, we are satisfied that this application is well-grounded. We grant the two remadies A and award the costs to the applicant.
1997 TLR p205
B
[zRPz]STEPHEN WASIRA v JOSEPH WARIOBA 1997 TLR 205 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga JJA and Samatta JJA and Mroso AgJA

C
CIVIL APPEAL 50 OF 1996
21 August 1997 D
(Appeal from the judgment of the High Court of Tanzania, Musoma, Lugakingira J)
Flynote
Civil Practice and Procedure - Appeals - Requirements - Rule 77 - Copy of notice of appeal to be served on E respondent.
Civil Practice and Procedure - Appeals - Requirements - Rule 83(1) - Exception in proviso to Rule 83(1) could only be invoked where copy of letter applying for proceedings served on respondent in terms of Rule 20(7) of Court of Appeal Rules. F
-Headnote
In an appeal against the nullification of an election result by the High Court the respondent filed two preliminary objections, viz that the appellant had failed to comply with the provisions of Rule 77 in that he had not served a copy of the notice of appeal on the respondent, and that the appeal had G been instituted out of time and without prior leave to do so.
Held:
(i) After an examination of all the circumstances of the case it was more likely than not that the respondent was not served with a copy of the appellant's notice of appeal. Since the H appellant had not taken steps to remedy the defect until only after he was prompted by the respondent's notice of the preliminary objection, the appeal coud not be saved;
(ii) as regards the objection that the appeal had been lodged out of time, the appellant could only rely on the exception to the 60 day rule provided for in the proviso to Rule 83(1) if he I had sent to the respon-
1997 TLR p206
A dent a copy of his letter to the Registrar applying for proceedings. In terms of Rule 20(7) of the Court of Appeal Rules this had to be served on the respondent. In the absence of proof of such service the objection had to be upheld.
Case Information

Order accordingly.

B Case referred to:

1. Aluminium Africa Ltd v Adil Abdallah Dhiyebi Civil Application No 6 of 1990 (unreported)

Dr Lamwai and Marando for the appellant.

C Rweyemamu and Dr Mwaikusa for the respondent.

[zJDz]Judgment

Kisanga, JA

During the 1995 general election Mr Stephen Masatu Wasira had been elected Member of D Parliament for the Bunda constituency, but his election was subsequently nullified by the High Court (Lugakingira, J) following an election petition filed by one of his opponents, Mr Joseph Sinde Warioba. Dissatisfied with the nullification of his election Mr Wasira sought to appeal to this Court, but before the appeal was heard Counsel for Mr Warioba, the respondent, filed two preliminary E objections to the appeal alleging two grounds: The first ground alleges non-compliance with Rule 77 of the Court of Appeal Rules in that no copy of the appellant's notice of appeal was served on the respondent or his Counsel. In the second ground it is alleged that the appeal has been instituted out F of time and without prior leave to do so.

At the heading of this preliminary objection, the respondent was represented by Mr J S Rweyemamu and Dr J T Mwaikusa, learned advocates while Dr M R M Lamwai and Mr Marando, G learned advocates appeared for the appellant. Before the hearing of the preliminary objection commenced, Dr Lamwai informed the Court that there was pending before this Court Civil Application No 29 of 1997 in which the appellant is applying for extension of time to serve the notice of appeal on the respondent. He further disclosed that that application was filed under a certificate H of urgency but the Chief Justice by an administrative decision directed that the preliminary objection which was filed earlier be heard first. Dr Lamwai, therefore, at first urged us to review the administrative decision of the Chief Justice and to hear that application first, but after some preliminary observations of the Court he conceded that the preliminary objection has to be heard I first.

1997 TLR p207

KISANGA JA

It was common ground that the judgement of the High Court giving rise to this appeal was delivered A at Musoma on 30 August 1996, and that the appellant promptly filed his notice of appeal on 2 September 1996. However the question whether the appellant served a copy of that notice on the respondent, as required by Rule 77 of the Court of Appeal Rules, is seriously in dispute and is the B subject matter for determination in this proceeding. The appellant asserts that a copy of that notice was duly served on the respondent, but the respondent vehemently denies it. Each side adduced evidence by affidavit in support of their respective claims.

The appellant filed two affidavits. One of them is dated 16 June 1997 and the other, being a reply to C the respondent's counter-affidavit, is dated 29 July 1997. In both affidavits the appellant says in effect that on 2 September 1996 he went to the Mwanza High Court registry where he found Mr Rweyemamu, the advocate who had acted for the respondent in the High Court. He

sought to serve D the copy of the notice of appeal on him but Mr Rweyemamu declined service on the ground that his instructions were limited to representing the respondent in the High Court only. Whereupon the appellant decided to go to serve the respondent at the New Mwanza Hotel where he, the respondent, was staying. He arrived at the hotel at about 9 am and upon inquiring he was informed E by one John Natay, a receptionist at the hotel, that the respondent was around. He then left the copy of the notice with John Natay with instructions to deliver it to the respondent. The appellant made no follow up on the matter after that. F

The said John Natay filed an affidavit in support of the appellant's case. He said in effect that on 2 September 1996 he delivered notice of appeal to the respondent on the instructions of the appellant.

The respondent in his counter-affidavit said that he was staying at the New Mwanza Hotel but G checked out of the hotel at 8.30 am on 2 September 1996 to catch a flight to Dar Es Salaam that day. He produced the carbon copy of the coupon of his used ticket which shows that the take off time of his plane that day was 10.05 am. He also produced a copy of the passenger manifest which bears his name as being one of the passengers travelling from Mwanza to Dar es Salaam on 2 H September 1996. For the respondent, therefore, it was contended that having checked out of the hotel at 8.30 am he could not have been served with the said notice of appeal which was allegedly brought to the hotel by the appellant at about 9 am. In response to this, however, the appellant in his I

A reply to the appellant's counter-affidavit maintained that the respondent was still at the hotel by 9 am that day because John Natay confirmed this to him.

Thus it amounts to one man's word against that of another. It is the word of the respondent who B claims that he checked out of the hotel at 8.30 am as against that of the appellant who maintains that the respondent was still at the hotel at 9 am. We now have the task of assessing the material before us and to decide which of the two stories is to be accepted.

C To start with, it is to be observed that the appellant himself did not see the respondent at Mwanza Hotel. He depends entirely on what Natay told him. But Natay does not say what time he delivered the notice to the respondent. So that when the respondent says that he checked out of the hotel at 8.30 am there is nothing to contradict him on that. The appellant's statement that according to D Natay the respondent was still at the hotel at 9 am that day is not enough; it required Natay himself to confirm it on oath, which he has not. As it is now one cannot assume that if Natay were asked he would necessarily have confirmed it. Indeed Natay might very well have come up with his own E version; he might have said that he delivered the notice to the respondent at 11 am which could not be true because by then the respondent, whose flight departure time was 10.05 am, would have already left Mwanza for Dar es Salaam.

In the course of submissions by Counsel, it appeared to be common ground that for domestic F flights passengers are required to report for checking in at the airport one hour before departure time. According to the respondent's used ticket then he had to be at the airport at about 9.05 am, and given that it takes some twenty to thirty minutes to drive to the airport, it seems less likely

that the respondent would still be at Mwanza Hotel at 9 am by which time he ought to be at the airport. G On the other hand the respondent's version that he checked out of the hotel at 8.30 am appears more likely because that would give him allowance of about 30 minutes to drive to reach the airport in time for checking in at about 9.05 am.

H Dr Lamwai came up with suggestions that the respondent's departure time for his flight may have been re-scheduled in such a way which made it possible for him to leave the hotel later that 8.30 am. Counsel also contended that the respondent, as a former Prime Minister, travels in style whereby someone would check him in and he does not have to stand in the queue. So that he could have left the hotel late and therefore he need not have left the hotel so early in order to beat the I scheduled time for reporting. However, all

this was mere speculation. No evidence whatsoever was adduced to show or suggest that there A were any changes in the scheduled times for reporting or take off, or that someone checked the respondent in while the respondent could remain behind at the hotel for some time. What is more, it was apparent from the passenger manifest that the respondent was travelling in a group of not less B than five passengers, most of them members of his family. No evidence was adduced to show that he severed himself from this group and remained behind at the hotel while the rest proceeded to the airport for checking in on schedule.

On the other hand there are some aspects in the appellant's story which tend to render that story C less probable. First of all when this notice of preliminary objection was served on him, his first reaction was to go to Court and apply for extension of time to serve the notice of appeal on the respondent. He did this in Civil Application No 29 of 1997 which was referred to at the beginning of this Ruling. Paragraph 7 of the affidavit in support of that application is reproduced word for word in D paragraph 10 of the affidavit dated 16 June 1997 which the appellant is relying on in this proceeding. That paragraph says:

> `Further that non-service of the notice upon the 1st respondent is not out of my negligence but out of the fact that E New Mwanza Hotel staff.'

The paragraph appears to be a clear admission by the appellant that the respondent was not served with the notice of appeal, and that is why he says in para 3 of the said affidavit of 16 June F 1996 that he applied to the Court for enlargement of time to serve the respondent accordingly. It is only in that way that the appellant's story can make sense. His subsequent claim that Natay informed him that he duly served the notice of appeal on the respondent sounds more of an G afterthought. For, when confronted with this allegation of non-service of the notice on the respondent, one would normally expect that the first thing appellant would have done was to turn to John Natay and ask him to confirm whether or not he had delivered the notice to the respondent as H instructed. And if the answer was in the affirmative then the natural thing to do was for the appellant to place that information before the Court in answer to the preliminary objection. It is only if John Natay confirmed non-service that the appellant would be expected to move the Court, as he did, for leave to do so out of time. But to say that the appellant would go to Court to ask for such I leave when he already

A knew that the respondent had been duly served sounds odd to say the least. In our view the more likely thing is that the appellant went to Court to apply for leave to serve the respondent with the notice of appeal out of time after he had satisfied himself that the respondent had not been served with such notice.

B There is yet another aspect of the appellant's conduct which raises some concern. A copy of the notice of appeal is directed to the respondent through his advocate, Mr J S Rweyemamu at Mr Rweyemamu's address in Bukoba. This raises a number of questions. First, the case was decided at Musoma. Now, since it is undisputed that both the appellant and the respondent are living in Dar C es Salaam why was it necessary to route the notice through the respondent's advocate in Bukoba instead of sending it direct to the respondent through his address for service in Dar es Salaam which was well known to the appellant? More so especially as the appellant himself travelled to Dar D es Salaam shortly after preparing the notice of appeal on 2 September 1996 because he held a press conference in Dar es Salaam on 8 September 1996.

Again the appellant, appreciating the importance of serving the respondent with the notice, says that he went personally to serve the respondent with the notice at the New Mwanza Hotel. If this is so E then why did he not ascertain that the respondent was in fact served either by himself effecting the service or by waiting for John Natay to return to him and confirm the service on the respondent? Why did the appellant not seek to have the respondent's signature against the receipt of such an important document? Worse still the appellant says in his affidavit that he never made a follow up F on the matter until the notice of preliminary objection was served on him. It is most strange that the appellant would fail to make a follow up on such an important matter. These are some of the G additional matters which is our view, serve to make the appellant's story increasingly less likely.

Considering all the circumstances of the case, therefore, we are satisfied that it is more likely than not that the respondent was not served with a copy of the appellant's notice of appeal. That renders H the appeal defective. Since the appellant did not take steps to remedy the defect until only after he was prompted by the respondent's notice of this preliminary objection, the appeal cannot now be saved. We shall make the final order after considering the other ground of objection.

I As stated earlier, the second leg of the objection alleges that the appeal has been instituted out of time and without leave to do so.

The notice of appeal was lodged in Court on 2 September 1996, and in terms of Rule 83(1) of the A Court of Appeal Rules the appeal ought to have been instituted within sixty days of that date. That is to say, the deadline for instituting the appeal was on 2 November 1996, but the appeal was lodged in Court only on 15 November 1996. That was clearly out of time unless the appellant could rely on B the exception to the sixty days rule provided for in the proviso to Rule 83(1). Mr Rweyemamu submitted that the appellant could not rely on that exception

because he had not satisfied one condition for invoking it. Learned Counsel went on to say that contrary to what the law requires, the appellant did not send to the respondent or his advocate a copy of the letter to the Registrar C applying for proceedings in the case; and that indeed there was no evidence that the appellant had written any such letter to the Registrar.

Refuting all this, Dr Lamwai cited a letter in the original court case file, addressed to the Registrar by the appellant and dated 2 September 1996 by which the appellant applied for proceedings in the D case, with a copy of that letter to the respondent in the care of his advocate, Mr M S Rweyemamu at this address in Bukoba. Dr Lamwai, therefore, contended that not only was the letter applying for proceedings written to the Registrar, but that a copy of that letter was also sent to the respondent E through his advocate. Learned Counsel further submitted that proof of service was evidenced by the fact that the letter was copied to the respondent in the care of his advocate, and for this submission he relied on the decision of a single judge of this Court (Mfalila, JA) in the case of F Aluminium Africa Ltd v Adil Abdallah Dhiyebi (1). In that case the learned judge had expressed the view that all that an appellant need show is that he sent to the respondent a copy of his letter to the Registrar applying for proceedings, and that the fact that such letter was copied to the respondent was enough proof (the emphasis is supplied.) G

With due respect, however, Dr Lamwai overlooked the fact that this decision of the single judge was reversed upon a reference to the full Court, vide Reference Civil Application No 6 of 1990. In the H course of hearing that reference the Court found that, upon his own admission, the appellant had not sent to the respondent a copy of his letter to the Registrar even though the letter itself was shown to have been copied to the respondent. Thus the Court did not decide on what constitutes `sending' within the meaning of sub-Rule (2) of Rule 83 of the Rules which requires that a copy of such letter be sent to the respondent. Happily, however, Dr Mwaikusa cited a statu- I

A tory provision which supplies the answer. It is Rule 20(7) of the Court of Appeal Rules which says:

> `20 (7) Where any document is required to be sent to any person, the document may be sent by hand or by B registered post to that person or to any person entitled under Rule 28 to appear on his behalf and notice of the date fixed for the hearing of an application or appeal or for the deliver of judgement or the reasons for any decision may be given by telephone or telegram.'

C For the appellant in the instant case it was merely shown that the letter in question was copied to the respondent's advocate, and nothing more. It is quite clear that that was no proof of service within the meaning of the above rule. We therefore find that the letter in question was not sent to the respondent and, consequently the appellant is not entitled to rely on the exception of Rule 83(1).

D Upon further examination of the original court case file Dr Mwaikusa brought to our attention the fact that the carbon copy of the appellant's letter to the Registrar was still in the file. The learned Counsel submitted that since the said letter to the Registrar is shown to have

been copied to the respondent only, it follows that the carbon copy found in the file is the one which was supposed to E be sent to the respondent but was not in fact sent. We have no good reason to differ from that view.

There is yet another point which reinforces our finding that the copy of the said letter to the F Registrar was not sent to the respondent. The appellant, in his Application No 29 of 1997 referred to in para 3 of his affidavit in this proceeding, is applying to this Court for leave to appeal out of time. It seems plain that he took that step because he was satisfied that he could not rely on the exception to Rule 83(1) as he had not sent to the respondent the copy of his letter to the Registrar. His G subsequent claim that the copy was duly sent to the respondent was an afterthought. It was a desperate attempt to save the situation after the administrative decision by the Chief Justice that the preliminary objection be heard first before the appellant's application. It therefore follows that the H appeal which was filed only on 15 November 1996 was time barred and hence bad in law as it was so filed without prior leave to do so.

In the result the preliminary objection is sustained on both grounds of the appellant's failure to serve the respondent with a copy of the notice of appeal, and of instituting the appeal out of time. I Accordingly the appeal is struck out with costs.

1997 TLR p213

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[zRPz]WILLIAM SHIJA v FORTUNATUS MASHA 1997 TLR 213 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Lubuva JJA, Samatta JJA and Mroso AgJA

CIVIL REFERENCE 12 OF 1997 B

25 August 1997

(Reference from the ruling of a single judge at the Court of Appeal of Tanzania, Dar es Salaam, Mfalila JA) C

Flynote

Civil Practice and Procedure - Appeal - Formalities - Effect of appeal having been struck out - Notice of appeal also disappearing at time of striking out D

-Headnote

The respondent had been granted an extension of time by the Court of Appeal within which to file an appeal after his appeal had previously been struck out on the ground that it was incompetent for not having the extracted order attached. The single judge of the Court of Appeal held that the delay on the part of the respondent had been technical and not actual and that the original appeal, though E incompetent, had been lodged in time. In the present reference the applicant contended that the application ought not to have been granted because it lacked the requisite notice of intention to appeal as with the striking out of the appeal the notice of appeal had also disappeared.

Held: F

(i) Applicant was correct in contending that when the appeal had been struck out the notice of appeal was also struck out: in that situation if a party still wished to appeal a fresh application had to be filed in the High Court seeking extension of time in which to give notice of appeal;

(ii) In determining whether the application should nonetheless be granted, the court took into G account that counsel had been negligent in adopting the correct procedure and this could not constitute sufficient reason for the exercise of the court's discretion.

Case Information

Reference allowed and order of single judge set aside.

Cases referred to: H

1. Arusha International Conference Centre v Damas Augustine Ndemasi Kavishe Civil Appeal No 34 of 1988 (unreported)

2. The Director of Public Prosecutions v Priska Asha Kwamtaza Criminal Reference No 1 of 1991 (unreported)

3. Maulidi Juma v Abdalla Juma Civil Application No 20 of 1988 (unreported) I 1997 TLR p214

A 4. Kighoma Ali Malima v Abas Yusuf Mwingamno Civil Application No 5 of 1987 (unreported)

5. Shah Hemraj Bharmas and Brothers v Sanotsh Kumar w/o J N Bhola [1961] EA 679

Makani, Muhula and Werema for the applicants.

B Mwale for the respondentt.

[zJDz]Judgment

Lubuva, JA

In the Court of Appeal Civil Application No 6 of 1997, Dr Fortunatus Lwanyantika Masha, the respondent had applied for extension of time within which to file the appeal. The learned single C judge (Mfalida, JA) granted the application in terms of the following order:

(a) The applicant should file the notice of appeal fourteen days from the date of this ruling.

D (b) Thereafter the processing of the appeal including the time table will be in accordance with the rules of this Court.

The applicant being dissatisfied with that decision has filed this reference. In order to appreciate the E sequence of events in the case its background is necessary. Briefly stated, it is as follows: The Civil Appeal No 43 of 1996 to this Court was struck out on the ground that it was incompetent because the extracted order was not annexed. The Court directed that the respondent who was the F appellant, could, if he so wished, institute the appeal afresh by making the appropriate application before the High Court. Following that decision, the respondent filed Miscellaneous Civil Cause No 15 of 1995 in the High Court at Mwanza. In that application the respondent sought to have the extension of time within which to appeal to this Court against the ruling of the High Court (Chipeta, G J). The learned judge dealing with that application held that the High Court had no power to grant extension of time to appeal in a

matter where the right of appeal to this Court lies as a matter of right. That the matter had to be dealt with by the Court of Appeal, the learned judge further held. H Consequently, the matter was brought up to this Court in Civil Application No 6 of 1997.

Granting the application, the learned single judge of this Court held that the delay on the part of the respondent was technical, not actual. The learned single judge took the view that the original appeal I though incompetent was lodged in time. In the view of the

learned single judge, the respondent acted immediately after the Court had struck out the first A appeal. On these grounds, the learned single judge was convinced that sufficient reason had been given to warrant the extension of time. The application was allowed.

Before us Mr Mwale, learned Counsel, appeared for the respondent. On the other hand Mr Makani and Mr Muhula, learned counsel, advocated for the first applicant. The second applicant, the B Honourable the Attorney General was represented by Mr Werema, learned Senior State Attorney. Mr Mwale vehemently submitted that the application before the learned single judge for extension of time to file the appeal was incompetent because it lacked the pre-requisite notice of intention to C appeal. This he said was because with the striking out of the appeal by this Court in Civil Appeal No 43 of 1996, the notice of appeal also disappeared. And so, Mr Mwale observed, in the absence of the notice of appeal, the application before the learned single judge was incompetent and therefore D the proceedings were a nullity. The order by the learned single judge, Mr Mwale further further submitted, arising from such proceedings is incompetent, it should be set aside. In support of his submission, Mr Mwale referred us to the decision of this Court in the case of Arusha International Conference Centre v Damas Augustine Ndemasi Kavishe (1). E

Responding to the submission by Mr Mwale, Mr Makani, learned Counsel strongly maintained that the application before the learned single judge was competent. He stated that the issue of the F competence of the application was not raised before the single judge and therefore it was not open to be raised at this stage on reference. The only issue before the single judge was an application for extension of time within which to file the appeal, Mr Makani urged. With regard to the notice of G appeal, it was the view of Mr Makani that once an application for extension of time to file the appeal was lodged, by necessary implication there was also an application for extension of time in which to file notice of appeal. If we understood Mr Makani properly, he seemed to be of the view that on account of an implied application regarding notice, the learned single judge granted a relief which was not sought. That is, the first applicant was granted extension of fourteen days within which to H file the notice of appeal.

For the second applicant, Mr Werema, learned Senior State Attorney while conceding that the application before the single judge lacked the requisite notice of appeal, still he insisted that as the matter involved an election petition which of great public interest, I

A the learned single judge was properly vested with jurisdiction to deal with the application.

With respect, we are in agreement with Mr Mwale that when Civil Appeal No 43 of 1996 was struck out, the notice of appeal was also struck out. In that situation, it is our view that if it is still so desired B to appeal, a fresh application has to be filed in the High Court seeking extension of time in which to give notice of appeal. In the case of Arusha International Conference Centre v Damas Augustine Ndemasi Kavishe, (supra) this Court had occasion to consider the effect of striking out an appeal. In that case it was stated:

C `The application for extension of time to file the memorandum and record of appeal presupposes that there is already a notice of appeal in existence. But the notice of appeal which brought into being the appeal which has just D been struck out, disappeared with the striking out of that appeal.'

In this case as pointed out by Mr Makani, learned Counsel it is apparent from the record that the issue of jurisdiction and competence of the application before the learned single judge was not E raised at the hearing of the application. It seems clear to us that the complaint before the learned single judge was that the application was incompetent because Rule 8 was not cited in the heading of the notice of motion. On this, the learned single judge ruled that, that did not affect the validity of the application. We can see no ground for faulting the judge on that. Otherwise the learned single F judge did not have the benefit of hearing the views of the learned Counsel for either of the parties on the issue of jurisdiction. For that reason, the application was determined without addressing the question of jurisdiction as such. However, considering the fact that the Court's proceedings are G governed by the Court of Appeal Rules, 1979, it is our view that it does not matter whether the issue of jurisdiction was raised at the hearing of the application before the single judge. We think the matter was properly raised at the hearing of this reference before us in order to ensure that the mandatory requirement of the rules regarding the processing of appeals was complied with. As it turned out in this case, the notice of appeal, a necessary requirement under Rule 76 which was lacking would not have come to light if the matter was not raised in the Court. For that reason, and with due respect, we do not accept Mr Makani's submission that there was an implied application for extension of time to file notice of appeal. This is because, in situations such as

this where, Rule 76 of the Court's rules explicitly provides for notice of appeal as a necessary A condition, compliance with it cannot be attained by implication. It has to be done in fact and nothing short of that. In here, the application before the learned single judge was filed before an application for extension of time to give notice of appeal had been made in the High Court. This fact apparently B the learned single judge realised when he granted an extension of fourteen days in which to file notice of appeal, a relief which was not sought in the application. In the circumstances, we do not think that Mr Makani's assertion on implied notice of appeal does in any way improve the applicant's case. On the other hand, even if Mr Makani's submission that there was an implied application for C extension of time in which to file notice of appeal is accepted, we think such an implied application, if any, would still be incompetent. The reason is that in terms of the provisions of s 11(1) of the Appellate Jurisdiction Act 1979 and Rule 8 of the

Court's Rules, this Court and the High Court have D concurrent jurisdiction to grant extension of time to give notice of appeal. However, under Rule 44, the application for extension of time shall in the first instance be made to the High Court. In the instant case, no such application had been made to the High Court. Therefore, the matter before E the learned single judge was incompetent for non-compliance with Rule 44. That is, the Court had no jurisdiction to entertain the application which had not satisfied the conditions set out under this rule. In somewhat similar circumstances, in the case of The Director of Public Prosecutions v F Priska Asha Kwambaza (2) this Court held that as the conditions under Rule 44 were not fulfilled, the learned single judge wrongly assumed jurisdiction. In this case as the application was decided without addressing the issue of jurisdiction, with respect we think if the learned single judge had done so, he would have come to this conclusion. G

Lack of jurisdiction alone would be sufficient to dispose of this reference. But Mr Mwale, learned Counsel had gone further in his submission before us. He contended that in order for the Court to exercise its discretion judiciously under Rule 8 to enlarge time to appeal sufficient reason should be H shown to explain the delay. In this case, Mr Mwale urged, no reason let alone sufficient reason, had been shown by the applicant to explain the delay. Mr Mwale went on in his submission, the distinction drawn by the learned single judge between technical and actual delay did not in his view, amount to sufficient reason. The delay in instituting the ap- I

A peal and seeking extension of time for filing notice of appeal was due to the negligence of the applicant's Counsel which is no sufficient reason, Mr Mwale emphasized. Mr Werema learned Senior State Attorney also conceded that no sufficient reason had been advanced to explain the delay.

B With regard to the merits of the application, Mr Makani ardently maintained that there was no negligence in connection with the application for extension of time either before the single judge of this Court or in the High Court in Mwanza. He said, it was in connection with Civil Appeal No 43 of 1996 in this Court to which negligence could be attributed on account of non-inclusion of an C extracted order. Following the Court's decision in striking out Civil Appeal No 43 of 1996, Mr Makani submitted, the applicant promptly took action. That is, the application in the High Court at Mwanza and then the application before the single judge, the subject of this reference were filed, Mr Makani D observed.

We have given anxious consideration to these submissions on whether sufficient reason had been given to warrant the extension of time. It is common knowledge that it is a matter of discretion on E the part of the Court to extend the time in which to file the appeal or notice of appeal. That such discretion is to be exercised judicially is also elementary. It is however, to be observed that in the exercise of such power, the requisite condition is that sufficient reason is to be given. Dealing with the application for extension of time in which to file the appeal the learned single judge held that the F delay was technical and that the applicant acted immediately after the pronouncement of the ruling of the Court striking out the appeal. Apparently, in an endeavour to comply with the direction of this Court to institute the appeal

afresh by an appropriate application before the High Court, the first respondent filed a wrong application in the High Court at Mwanza. That is, he filed an application for G extension of time to appeal to this Court. That was, as correctly stated by Mr Mwale, a wrong application. It is common ground that an application of that nature is filed in this Court. The appropriate application envisaged to be filed in the High Court was an application for extension of time in which to file notice of appeal. Once that application is granted in the High Court, then the H application for extension of time to appeal before a single judge would be filed. As it happened, the application to the single judge of this Court was filed before the appropriate application was made before the High Court and granted. Thus, the delay was caused by the wrong application filed in the I High Court. This, we are con-

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vinced, is a clear manifestation of negligence on the part of Counsel. In our view, such negligence A on the part of the Counsel for the first respondent goes to the very root of the matter, it cannot be regarded as a mere slip. On a number of occasions, this Court has held that negligence on the part of Counsel is not sufficient reason for extending time under Rule 8. See the following among others: Maulidi Juma v Abdalla Juma (3), Kiqhoma Ali Malima v Abas Yusuf Mwingamno (4). The Court of B Appeal for Eastern Africa had also dealt with this aspect in the case of Shah Hemraj Bharmas and Brothers v Santosh Kumar w/o J N Bhola (5).

Applying the principle enunciated in these cases to the instant case, we are with respect, satisfied C that the negligence on the part of the Counsel for the first respondent in filing wrong applications which caused the delay cannot constitute sufficient reason. In our understanding, what featured prominently before the learned single judge was the fact that the wrong application to the High Court D was filed immediately after this Court struck out the appeal and that the delay in filing the application which was before him was technical. Had the learned single judge taken into account the fact that it was the Counsel's act of filing wrong applications which caused the delay, we think he would well have come to a different decision. E

In the result, and for the foregoing reasons we are resolutely of the view that the learned single judge dealt with an incompetent application which did not comply with the Court's Rules 44 and 71. Consequently, the proceedings before the learned single judge were a nullity. Accordingly, we allow the reference and set aside the order of the learned single judge dated 21 May 1997. The applicant F is awarded costs for this reference.

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[zRPz]PRINCE BAGENDA v WILSON MASILINGI AND ANOTHER 1997 TLR 220 (HC)

Court High Court of Tanzania - Lukoba

Judge Masanche J

B MISCELLANEOUS CIVIL CAUSE 5 OF 1995

25 August 1997

Flynote

C Elections - Election petition - Whether election free and fair - Cumulative irregularities and malpractices rendering election unfair

-Headnote

The petitioner, who was a losing candidate in the Muleba South constituency, filed a suit to challenge the outcome of the election. After examining the evidence,

D Held:

(i) That ballot boxes brought before the returning officer had been broken into;

(ii) That ballot boxes brought to the returning officer had not been escorted by the police or petitioner's agent;

E (iii) That petitioner's agents had not been provided with RF2 forms;

(iv) That the district security officer had burnt ballot papers for demonstration;

(v) That candidates' photographs and voting formats to educate the electorate on how to vote had been delayed;

(vi) That the counting exercise had been conducted by the returning officer without involving F the petitioner or his agents;

(vii) That the RF2 forms had been designed in such a way that the results could easily be tampered with;

(viii) That voting had been allowed to drag until until the day after the election was scheduled to have been completed;

G (ix) That in the light of the cumulative irregularities and malpractices and the deployment of FFU, who were mainly concerned with riots, at the election for reasons of intimidation, the election had been rendered not free and fair and the result had to be nullified.

Case Information

H Petition allowed and parliamentary election in Muleba South in November 1995 set aside.

Cases referred to:

1. Walid Kabourou v Attorney General and others Misc Civil Cause No 1 of 1994 (Tabora) (unreported)

I 2. Philip Anania Masasi v Returning Officer Njombe North Constituency and others Misc Civil Cause No 7 of 1995 - Songea (unreported)

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3. Joseph Sinde Warioba v Stephen Masatu Wassira and Anor Misc Civil Cause No 25 of A 1995 (unreported)

4. Dyamwale v Masomo [1982] TLR 69

5. Kasusura v Kabuye [1982] TLR 338

6. Attorney General and others v Walid Kabourou [1996] TLR 156 (CA)

7. George M Shambwe v Attorney General and Anor [1996] TLR 334 (CA) B

8. Maynard Mmita Bujiku Ng'wanansese and Anor v Attorney General and Anor Misc Civil Case No 6 of 1995 (unreported)

Ndyanabo for the petitioner.
The first respondent appeared in person; Mwambegele for the second respondent. C
[zJDz]Judgment
Masanche J
In 1995, our Country witnessed the first multiparty general election. It was an exiting phenomena. Thirteen parties were then in existence in the register of the Registrar of Political Parties. At the D beginning, one thought all parties were going to field candidates to contest for both the parliamentary seats, and the presidential post. Not all the parties fielded candidates.
This judgment is concerned with the parliamentary and presidential elections of Muleba South in Kagera Region. In that constituency five political parties fielded candidates for the parliamentary E seat. Two fielded candidates for the Presidential seat. The parties that fielded candidates were: Chama Cha Mapinduzi (CCM); their candidate was Wilson Mutaganywa Masilingi. (I will refer to him in the rest of the judgment as Mr Masilingi). Then there was the party called NCCR Mageuzi. They fielded a candidate called Prince Mahinja Mulokozi Bagenda (I will refer to him in the rest of the F judgment as Mr Bagenda). There was another Party called CUF (Civil United Front). This Party fielded a candidate called Mr Angelo Mutta. There was another Party called the UDP (United Democratic Party). This party fielded a candidate called Mr Gratian Alphonce Mkoba. The fourth G Party, UMD (Union for Multiparty Democracy) fielded a person called Simon Kashura. These were the candidates for the parliamentary seat.
For the Presidential seat, only two parties fielded candidates. These were the CCM who fielded a H candidate called Benjamin William Mkapa and NCCR Mageuzi who fielded a candidate called Augustine Lyatonga Mrema. The other three parties, as far as Muleba South is concerned, did not field any candidates for the Presidential post. This judgment, as I have to emphasize, concerns only the election for the parliamentary seat.
It is I think desirable, nay, necessary, to mention, at the outset, I

A (especially to a person coming from outside Kagera) that Muleba South was one constituency in the Muleba District. There was another constituency called Muleba North. Muleba North was a fully fledged constituency and had a candidate called Ndimara Tegambwage for the parliamentary post. B Ndimara contested under the umbrella NCCR Mageuzi and won the seat. I have decided to mention this because during the trial, counsels, and, indeed witnesses, mentioned the North quite often.
At the end of these parliamentary elections Mr Masilingi emerged the winner. He scored twenty one C thousand eight hundred and fifty one votes as against the second placed Mr Bagenda, who scored eighteen thousand one hundred and thirty one votes. Masilingi, by simple mathematics became a winner by a majority of three thousand seven hundred and twenty votes. This victory did not please Mr Bagenda and his party. And so, they sought to challenge that victory in a court of law.

D Indeed, Mr Bagenda filed a suit in court to challenge the victory. Mr Bagenda and his party, through Mr Ndyanab, learned counsel have fielded twenty nine witnesses, including Mr Bagenda himself. Mr Masilingi and the Attorney General have fielded fifteen witnesses, including Mr Masilingi himself. While Mr Masilingi presented his case himself, the Attorney General was represented by Mr E Mwambegele, the Senior State Attorney based in Mwanza.

I must state at the outset that the trial of the whole case was commendable. Counsels presented their case with commendable zeal. They left no stone unturned. It was gratifying seeing the learned F counsel Mr Ndyanabo spending a month outside Dar es Salaam. Nobody complained of boredom. Nobody fell sick.

Now, the following issues were framed at the beginning of the whole exercise. Two issues became added up in the course of the hearing. Certainly, nobody can complain about the added issues, G because the law allows doing such a thing (see Ord 16 Rule 5 of the Civil Procedure Code). Even my brother Mchome J had to adopt a similar approach in the case of Walid Kabourou v Attorney General (1).

So, the following nine issues were to be adjudicated upon, and it is upon these that the rest of the H judgment will dwell. The issues were as follows:

1. Whether the ballot boxes were brought before the Returning Officers broken into;

I 2. Whether ballot boxes were brought at the Returning Officer's office without escort by either police or petitioners agent;

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MASANCHE J

3. Whether petitioner's agents were not provided with Returning Officers Form (RF forms A referred to);

4. Whether the District Security Officer (we came to know him by the name of Mr Aron Mpole, RWM) burnt 30 ballot papers for demonstration at Memory Bar Muleba after he had forcefully taken them from the petitioner's agent one Gerald Omubunda; B

5. Whether candidate's photographs and voting formats to educate the electorate on how to vote were delayed.

6. Whether the counting exercise was conducted by the Returning Officer without involving the petitioner or his agents;

7. Whether the forms for recording the results were designed in such a way that the result C would be easily tampered with;

8. Whether voting exercise proceed uninterrupted until 30 October 1995;

9. To what relief or reliefs are the parties entitled.

So, we had nine issues in all. D

Like the submissions I have received and read, from all the parties involved (Mr Ndyanabo, Mr Mwambegele and Mr Masilingi), I will proceed to discuss these issues in the same order, or seratio. But before I do that, let me give the position at law with regard to General Elections: It seems to me that the established is this that: E

1. `An election petition must be construed more strictly than a plaint in a civil suit. This principle arises because (1) the right to file an election petition is not a common law right but a statutory right; (2) one of the respondents is a person who has been declared by the F Returning Officer to have the confidence of the electorate and the Courts are slow to interfere with such verdicts except when a clear case is made out; and (3) where the petitioner establishes corrupt practices, the successful candidate may not only be unseated but even disqualified to stand as a candidate in future elections.' Nogha's Law of Pleadings 14th Edition. Samatta JK (as he then was) endorses this view in Philip Anania G Masasi v Returning Officer Njombe North Constituency and others (2).

2. It is still available to challenge the validity of an election on the ground of illegalities that are otherwise not expressly stated under 2. 108 [of the Election Act]. H

Secondly, there is the jurisprudential argument which derives from the spirit of the Constitution and the Election Act, and that is democratic elections have to be free and fair. This too, has not been effected and Parliament has no power to legislate against such principle. `An election riddled with chicanery and I

A criminality is not an election in the eyes of the law, because it does not express the true wishes of the electorate.' (Lugakingira J, in Joseph Sinde Warioba v Stephen Masatu Wassira and Anor (3)).

3. The franchise is the very cornerstone of democracy; it is the one right, perhaps more than B any other, upon which all other constitutional rights depend for their effective protection. When the right to vote is denied or abrogated, democracy and freedom fail.' (Lugakingira J in Joseph Sinde Warioba's case supra)

4. It is now the law that number of votes scored by candidates in an election may not per se be used to argue that `after all even if he was given those votes, numerically he will still lag C behind' -- So the cases of Dyamwale v Masomo (4) and Kasusura v Kabuye (5) are now, in advent of the incorporation of fundamental rights in our constitution, of no practical value.

5. The position then is this, as stated by Court of Appeal in Attorney General v Walid D Kabourou (6) that:

`taking into account the principle which underlies the Constitution and the Elections Act 1985, that elections shall be free and fair, ... an election which is generally unfree and unfair is not an election as E envisaged by the Constitution and the Election Act, and consequently anything which renders the election unfree and unfair is in law valid ground for nullification of such purported election.'

6. As has been said in a number of cases on elections, in the end:

F `the trial judge will have to take into account -- the cumulation effect on the election of the proved irregularity'. Masasis' case (supra): Samatta J K.

The Court of Appeal in the case of George M Shambwe v Attorney General (7) had observed that G the petition:

`[rested] entirely on the cumulative adverse effect of the series of alleged non-compliance or irregularities in the conduct of the electoral process.'

H Having said all that, let is now look at the issues framed:

Issue No 1

Whether the ballot boxes were brought before the Returning Officer broken into:

I We had several witnesses who testified on this issue. The story

behind this issue is that, after the election exercise, the ballot boxes locked and sealed, would be A transported to Muleba District Headquarters by escortees who would include representatives of the parties that would have taken part. Muleba District Headquarters was supposed to have been the place where different results from the boxes would be added up. The evidence received in Court, B and which has not been much contraverted, is that some boxes for parliamentary results arrived in Muleba in bad shape either no locks or with locks with tampered seals. Of particular attraction to this deficiency were boxes from Nshamba, the birth place of Mr Masilingi and also boxes that emanated from Kimwani. Nshamba and Kimwani were divisions (tarafas). The allegation was that C Kasharunga, which was chosen to be the centre for collection of the boxes en-route Muleba, was the most notorious in the exercise of breaking the boxes.

On this issue we had witnesses like Wencheslaus Joseph PW6 the NCCR polling agent at Itongo, D who testified that in the first place posters for demonstration came late. They were in fact put up or pasted on the wall or whatever place they were to be pasted to, at 11.30 am. Wencheslaus became lucky in that while proceeding home he passed through Nshamba and saw four ballot boxes opened. Sensing some foul play, Wenchslaus told the Court that their senior party official, E Byombalirwa, PW27, decided to escort these to the District Headquarters.

There are other witnesses who testified on this aspect of boxes arriving at both the Divisions and at the Headquarters tampered with. These were Philip Byombalirwa, PW27 -- the one I have just F mentioned: Zuberi Mbyana RW5, the District Education Officer of Muleba District, who called himself a `reserve' polling assistant; Mr Singomba, RW3, the Immigration Officer and one who was an assistant Returning Officer at Kimwani; Mr Aloyce Mpole RW1, the Security Officer, and the G Returning Officer himself, Mr Mtalo RW9. All these testified that some 14 boxes for the parliamentary election and 8 boxes for the presidential election got tampered with.

As for this tampering with the boxes, the respondents give the following explanation: H

1. That some of the boxes arrived at either tarafani or at the headquarters itself with tampered locks and seals because of bad roads which became worse because of the rains that were falling;

2. That the opening of the boxes (at the headquarters and not I

A tarafani -- per Aloyce Mtalo RW9), was done to retrieve RF2s which had been inadvertently locked inside the ballot boxes. The purpose was to get the RF2s and RF2As out as the instructions were that they had to be in special envelopes and ferried away separately.

B Now I agree that the boxes were sent before the Returning Officer at the District Headquarters in bad shape. I do not, however, agree with Mr Mtalo, and Mr Mbyama, that the seals went off and the locks became un-operational because of the bad roads. On the contrary, the boxes were opened to retrieve RF2 forms which had been locked in there. In doing that exercise there was every likelihood C of tampering with the actual votes. Again, from the totality of evidence, I am satisfied that the boxes were opened at the arafa level -- Nshamba and Kasharunga. Opening of boxes at any stage of the electorate process before the destination was contrary to directive that these very Assistant D Returning Officers had received from the Electoral Commission. For example para 5 of the `Maelezo kwa Wasimamizi wa Vituo vya kura' reads:

`Vifaa vifuatavyo ni muhimu sana na vinapaswa vitunzwe na wewe mwenyewe mpaka utakapomkabidhi E msimamizi wako wa Uchaguzi au msaidizi wake

(h) Funguo na kufuli'

Then, Part Four goes on to state (para 55 (ii)):

F `Makosa mengine mnayoonwa mjiepushe nayo ni haya:

(i) . . .

(ii) Kubandua lakiri, kufungua au kujaribu kufungua masanduku ya kura na bahasha zilizofungwa kama ilivyoolezwa katika Ibara ya 16 na 42 ya maelezo haya.'

G These instructions are quite clear and I am sure the Returning Officer Mr Mtalo and his assistants Mr Singombe RW3 and Mr Kakuleterwa RW6, to mention just a few, knew of these instructions. By the way, in the Kishapu Case Maynard Mwita Bujiku Ng'wanansese v Attorney General my brother Mchome J, went further and said:

`Also among the materials to be handed to the presiding officers before the poll are kufuli lisilofungwa, and `funguo za kufuli.'

Mchome J goes on to say, that:

`And the ballot boxes after being locked and sealed are to be handed to the Returning Officer and not to be opened A on the way.'

Mchome J then concludes:

`These provisions of the law are mandatory and go to the root of an election.' B

I could not have a better assistance than those observations of my brother Mchome J.

The Assistant Returning Officers, even if RF2 forms had been inadvertently locked inside the ballot boxes, ought to have used their good sense and judgment by not opening them en-route. C

I have read the submission by Mr Mwambegele where he says:

`No person testified to have seen fake votes being either put or even seen in the ballot boxes. The petitioner D capitalised on bringing evidence to show that the boxes arrived at

Muleba broken into and as such this remains a mere allegation which did not affect the result of the election.'

I do not agree with Mr Mwambegele. Later in this judgment I will demonstrate how that lapse E affected another issue.

On the first issue I hold in the affirmative that boxes were brought to the Headquarters broken into.

Issue No 2 F

Whether Ballot Boxes brought to the Returning Officer were not escorted by police or petitioner's agent:

The witnesses who came to say something on this issue were the Returning Officer himself, Mr Aloyce Mtalo, Wencheslaus Joseph PW6; Kashaju Bazigiza PW7, Aristides Jeremiah PW10; G Benedict Mutongore RW10, Sam Kashura PW26, to mention just a few. Their evidence, in totality, was clear and simple. The boxes were not escorted by all these who were supposed to have escorted them. And, we are given the reasons for that: It is alleged that there was no space in the vehicles to accommodate the Party agents. Was that explanation plausible? I think it was. But then H one would ask why did the Returning Officer, right at the beginning, not make sure that there was enough transport to ferry the boxes, and most importantly the escortees? Mr Mwambegele, in his submission, admits that there was such a lapse (although he puts it as a `sake of argument') and adds: I

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MASANCHE J

A `It is one thing to prove that the boxes were not escorted by neither the police nor Petitioners' agents to the Returning Officer and it is quite another to prove that in that course, some boxes were tampered with.'

B I do not agree with that proposition. In all these election processes, transparency should be always be the target. This aspect of drivers of the lorries leaving behind agents, and in most cases they were agents of the other parties other than CCM, has so notoriously been spoken of that it is unnecessary to labour on the point. I answer the second issue in the affirmative.

C Issue No 3

Whether petitioner's agents were not provided with RF2 Forms:

This issue has also so notoriously been spoken of. The best evidence, of course, came from the D Returning Officer, Mr Mtalo, himself. He admits that RF2 forms were few. He put it this way:

`After discovering that they [RF2] were few, we made a cyclostyling of the copies. But even cyclostyling did not E produce enough copies. I advised my assistants to tell the agents to write on any piece of paper.'

Witnesses, who testified on shortage of these vital forms -- forms that were to bear the entire results of the election, were just too many. There was Valentino Karoli, PW5; Wencheslaus, PW2; F Kashaju Bazigiza PW7; Stanslaus Sotery PW8; Aristides Jeremiah PW9. Frederick Baharuza PW4, for example who was a polling agent of NCCR at Kashenge, talks of inadequacy of these forms. Valentino Karoli of Kiholele Primary School polling station testified that they

were refused the G forms, being told that they were not in existence. In other words not a single form was there.

As I say, the issue of RF2s being in short supply is true.

The Attorney General argues on the other hand, that RF2s were indeed in short supply. He goes on to state that, in any case, the law provides that they can be distributed to every polling agent `if H available in sufficient numbers' (s 79I(e) of Election Act).

Now, what I say is this, that in the first place Kagera Region, as a whole, and Muleba District, in particular, received sufficient supplies of RF2s, RF2As and ballot papers. In any case each polling station was supposed to have the two sets for just the five political parties that had contested for the I parliamentary set. This Court was informed of this through Mr Bagenda the petitioner, who was read-

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ing Taarifa ya Tume ya Taifa ya Uchaguzi kuhusu Uchaguzi wa Rais na Wabunge 1995 -- a book A which was tendered as Exhibit P15. On p 42 of the book, it is categorically stated that Kagera was, in fact the first region which received its quarter of voting materials from England. The papers were received in Dar es Salaam on 11 October 1995. Truly, the papers (all) were late in reaching Kagera, but they eventually reached Kagera. (See 6.11 on p 44). B

The problem which beset these RF2 forms were necessitated by Mr Mtalo, the Returning Officer, himself who took a casual attitude of the type of work he was supposed to do. Part of his own evidence in fact says: C

> `I did not make a follow up to find out whether what I told them was done. I got a report that all was fine.'

All was not fine with the RF2 forms. There was a serious allegation that many agents, including Mr D Bagenda himself saw piles and piles of RF2 forms in the office of Mr Mtalo. If I make take up the story on this aspect of the case by Mr Bagenda himself, from the proceedings: He said:

> `In the office of Mr Mtalo we found RF2s. Of course the report talks of negligence in Dar es Salaam. But the pattern E was the same in Muleba. I saw them. They were RF2s and not RF5 or RF4. I went there and touched them and asked Mr Mtalo "what are these?"'

Mr Mtalo's reply was:

> `It is not true that there were piles and piles of RF2 forms in my office.' F

He went on to say:

> `I had other forms like RF2A, RF3A and RF5.' G

I have no slight hesitation in saying that Mr Bagenda saw RF2 forms in the office of Mr Mtalo. I have no reason to disbelieve Mr Bagenda who impressed me by being steady and composed in the H dock.

I therefore answer the third issue in the affirmative.

Issue No 4

Whether the District Security Officer (Mr Mpole) burnt thirty I

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MASANCHE J

A ballot papers for demonstration at Memory Bar in Muleba:

The story goes that on 28 October 1995, a day before the actual voting, Gerald William Ndyamkama was given between ten to twenty posters (with pictures of candidates) so that they are sent to what ever polling station that was supposed to get them for pasting. He met Mr Mpole, RW1, B the Security Officer of Muleba District on the way. It was roughly between 10.00 am and 12.00 noon. Mr Mpole it is said, asked Gerald, after he (Mr Mpole) had found Gerald with these posters. He said:

C `Wewe ndugu yangu kwa nini unataka kujiingiza katika migogoro?'

Then, it is also said that Mr Mpole told Gerald that it was a criminal offence to be carrying those posters. Then, it is said, Mr Mpole took them away and proceeded to Memory Bar, in that broad daylight, and burnt them with kerosene. The kerosene was brought to him by a barmaid, who of D course was not called as a witness. Poor Gerald, he was later taken into the same bar and given a beer.

This story was controverted by Mr Mpole himself. He, indeed, agreed that such forms were burnt, E but said that they were burnt by Gerald himself because, according to Mr Mpole himself, Gerald had a grudge against Mr Bagenda. Mr Bagenda had refused to pay Gerald some money. What is surprising, however, is that even when Mr Mpole met Mr Bagenda a few minutes after the burning of F the posters, Mr Mpole never told Mr Bagenda that he (Bagenda) had refused a person payment of money. Let me reproduce what Mr Mpole said. Mr Mpole's evidence reads:

`He (Bagenda) said that the act of burning papers I had done was bad. I told him that I had not burnt any papers. I G told him that if any papers were burnt, he should report to the police. I did not tell him that the one who burnt the papers was Gerald (audience laughs).'

Now, after evaluating all the evidence regarding this allegation of burning these papers, I am H satisfied beyond reasonable doubt that Mr Mpole burnt these papers for reasons which are obvious -- to prevent Gerald from reaching and teaching his people on the posters.

Frankly speaking I was not impressed at all by the evidence of Mr Mpole. I am just wondering what type of Security Officer this is -- a person who did such a childish thing, and without foreseeing its I consequences. Mr Bagenda has said this, on these posters, (and I

agree with him), that actually they are `visual aids'. Mr Bagenda informed the Court that: A

`In any case, in adult education theory, visual aids are most effective. Illiterates become well informed on visual aids. Some old men do not hear well. Pictures are very important to show personality or composure. We would, for example, explain that `our man in the picture is the one with a hat or we would say, `our man is the last one in the B line' or things to that effect.'

Mr Mwambegele has complained, in his submission, that maybe, the barmaid ought to have been called to testify on who had burnt the papers. She should have come to say that it was Mr Mpole C who burnt them. I do not agree with that proposition. In the first place burning of those papers by who ever would have done it was bad enough. It was worse that it was done by a

Security Officer. Even if Gerald had burnt them, the blame would have equally been thrown on Mr Mpole. He was a D Security Officer of a country. One of his duties, like any other organ of state, is to see that peace and tranquillity prevail in a country. He would have been castigated for failing to prevent who ever burnt them from burning them. I answer the fourth issue in the affirmative. E

Issue No 5

Whether candidate's photographs and voting formats to educate the electorate on how to vote were delayed: F

This issue need not involve us much. Almost all witnesses who were agents of the polling stations -- be it for CCM or the other parties have been at one that these posters were late in going up on Notice Boards or where ever that were to be placed. If I may mention a few of the witnesses who said so: They were Ruben Tibenda PW1; Valentine Karoli; Wencheslaus Joseph PW6; Thadeo G Mugusha. These, with others, testified that posters were pasted late.

As I said earlier on, it was not for fun that the Electoral Commission provided for the issuance of these posters. One would have therefore expected the Returning Officer to have been more vigilant in seeing that they were pasted early. But what did Mr Mtalo do? At p 125 of the proceedings he H says:

`We showed the officials the forms and how to use them. We gave party representatives some of the papers. Some were given to polling agents. They were to be posted on open space at the polling station. I did not get a I

A report from anyone or voter saying that he did not vote because of not having posters.'

With due respect, that is not an acceptable explanation. It is a lackadaisical explanation.

B I answer the fifth issue in the affirmative:

Issue No 6

Whether counting exercise was conducted by the Returning Officer without involving the petitioner on his agents:

C Mr Mtalo has refuted to have conducted the counting without involving the Petitioner. He says he made the totalling at the District Headquarters without Mr Bagenda, the petitioner, because the petitioner himself refused to cooperate.

The story unfurled in Court about this issue is as follows:

D After it was discovered that some ballot boxes from the polling stations had been opened at the tarafa level for purposes of correcting what had gone wrong with regard to where the RF2s were to be preserved, the petitioner and his agents, who included Philip Byombalirwa, asked for a recount. They were refused. This was, indeed contrary to sub section 3 of s 80 of the Election Act No 1 of E 1985 which provides

`The candidate or polling agent may request the Returning Officer to check on any part of the addition to ascertain its accuracy but shall not be entitled to request a recount of all the votes or all the ballot papers from any polling F station, unless the accuracy of the report of the results from that polling station, were disputed by the polling agent or candidate present.'

Subsection 4 reads:

G `Where a request is made pursuant to sub section (3) the Returning Officer shall not unreasonably refuse to check the addition or to recount the ballot papers of any particular polling station.'

I have indeed minuted somewhere in this judgment that with the advent of the Bill of Rights, a H candidate's request for a recount has no debate. Refusing a recount is against the spirit of fair play in the electoral process.

The evidence unfurled in Court is to the effect that the petitioner in no uncertain terms asked for a I recount. He said, in Court, for example:

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`I insisted on a re-count. If there was a point of dispute which I had, I was entitled to a request of a recount. Some A of the matters in dispute took place at transit point. There were no forms at these transit points. We were entitled to be listened to, and have a recount.'

It was interesting to see how the respondent went about defending this issue. The respondent's B (both) explanation or defence to this vital aspect of the case was a total confusion. Whereas in examination in chief Mr Mtalo said:

`When we discovered that RF2 had no signature or any other problem, we decided to recount, that is, in respect of that particular box.' C

Later Mr Mtalo is recorded to have said:

`We agreed that where there were RF2 or RF2A which were defective or they were not there at all we would make a recount. Where there was no RF2 either inside the boxes or outside the boxes we were to make a recount.' D

Then on cross examination, Mr Mtalo is reported to have said:

`It is not true that I refused a recount for Muleba South.' E

But earlier on, a witness from the respondent's side, Mr Zuberi Mbyana, RW5, the District Education Officer, said something to the contrary. This witness, coming from the respondent's side was so steady and impressive that I intend to quote him extensively. F

Mr Mbyana is a District Education Officer of Muleba District. He is a graduate of the university of Dar es Salaam, having obtained his degree in 1991. Apart from saying something on this particular point of a recount, he said some other pertinent things as I will demonstrate. G

On election materials he said this:

`Some people had told me that they had placed the RF2 forms in boxes. I consulted Kasika who was the boss there, for guidance -- Kasika told me that since the agents were there they should be allowed to open the boxes so H that they hand over the RF2s properly. I told them to open and hand over the RF2 forms to me -- that was for those who had locked them inside.'

About the RF2 forms being pulled out from the boxes, Mr Mbyana agreed that there were such boxes which were broken into. I

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A And when Mr Zuberi Mbyana, RW5 was cross examined by Mr Ndyanabo for the petitioner he said (now on the recount aspect):

`There was adding up. We were in group. NCCR had wanted a recount of the votes. They were refused. Other parties apart from NCCR agreed for the addition. In the North they did a recount.'

B I think now is opportune time to explain the Muleba North analogy in the counting and adding of votes.

There was evidence that Mr Mtalo was equally a Returning Officer for Muleba North. The petitioner C brought a witness James William Rwayongeza PW28, an Evangelist, who came to tell the Court that as far as Muleba North was concerned, Mr Mtalo had allowed a recount. Something happened when this witness was testifying which I think is not insignificant. To me it goes to real credibility. D There was a time when Mr Masilingi, the first respondent, suggested, in Court that he (James Rweyongeza PW28) was telling lies. We all remember what he retorted.

He said:

E `I have not been taught. I am a God's man. I have handled this Bible. I fear this Bible -- its God's work. Don't talk about my being taught.'

And indeed, as I observed this witness, he looked angry at being told that he had been taught to say F that in Muleba North there was a recount of the votes.

And concluding his evidence, on being led by Mr Ndyanabo, this particular witness said:

`In the North, the misunderstanding was between CCM and NCCR. Mr Mtalo solved it by saying we should do the G counting again. In the South it was the same, Mr Mtalo was called to solve the problem between CCM and NCCR. He allowed in one area and refused in the other. Where he allowed a recount, NCCR Mageuzi won. Where he refused, CCM won.'

H But, why was there a refusal of a recount in Muleba South while in Muleba North such a request was granted? The explanation is a `beat about the bush' Mr Mwambegele, says:

`There was no complaint envisaged by this provision (s 80(3) of the Election Act) and therefore the Returning I Officer was in no way, in a

position to accept to recount all the votes from any polling station. For these reasons we humbly submit that the A Petitioner has not proved this issue and pray for the dismissal of the same on account of its not being proved, let alone its not being proved to the standard.'

Without labouring much on the point, it is not true that there was no complaint. There was verbal B complaint from the mouths of Mr Bagenda himself and Phillip Byombalirwa. Again there was the letter from Bagenda (Exh P16).

I answer that sixth issue in the affirmative. C

Issue No 7

Whether RF2 forms were designed in such a way that the results would easily be tampered with: On this issue we can only express opinion.

I am made to understand from the petitioner that these forms were designed by the National D Electoral Commission. I think they have a mandate to design such forms. There have been criticisms from both sides on the format of the forms. Mr Mtalo RW9, the Returning Officer himself said, that:

`The RF2 forms are not in good format. They are prone to tamper. One can pull out the first page and fill fake E numbers.'

Bagenda, the petitioner, said, if I may quote him (at p 65) of the typed proceedings that:

`The design of RF2 is bad. It is a document of the Electoral Commission. I thought, in first place, it ought to have F been eritten `tume ya uchaguzi', so that if it fell in wrong hands we would know where to sent it. Again, I thought they should have put their address there. Right now we do not know whether this belongs to the Government of Tanzania or Tanganyika or Uganda.' G

He went on to say; that:

`The M.P. forms are of two sheets. The two can be separated and on each one can be written anything. The pieces of paper should have been folding, if there was need of having two papers.' H

I think the format of the RF2s is bad. Surprisingly in their report `Taarifa ya Tume ya Taifa Uchaguzi kuhusu Uchaguzi wa Rais na Wabunge 1995,' the Electoral Commission does not point out this I

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MASANCHE J

A weakness. But, I am not prepared to say, with exactitude, that in the case before us the RF2 forms were tampered with in a particular way. Maybe, if we have had a recount we would have seen what was tampered with. Surely, however, the forms are badly designed and they are prone to a rig. I answer the seventh issue in the affirmative.

B Issue No 8

Whether voting exercise proceeded uninterrupted until 30 October:

C Well, without beating about the bush, yes, indeed, the voting proceeded to 30 October 1995. Tikenda PW1 said so. Reuben Fredrick PW2 said so. But why did the voting overflow to 30 October 1995? We are told that it was because of the poor supervision of the electoral process by Mr Mtalo RW9. Mr Mwambagele, the learned state attorney for the Attorney General, concedes in his D submission when he says:

`it was interrupted by shortage of ballot papers for parliamentary elections. The papers were sought from the Assistant Returning Officer during which the exercise was stopped but resumed after getting papers'.

E I have already held that there was no short supply of ballot papers from Dar es Salaam. In fact Kagera (according to the Report of the Electoral Commission -- Exh P15) got three thousand six hundred and thirty two extra ballot papers for the parliamentary election. And, it is these shortcomings by the Returning Officer which made the voting go into the night and even overflowing F to the next day, as I have already pointed out. Such things are to be avoided if, in a democratic society, an election is to be seen to be free and fair.

True, it may not be an offence to proceed to vote, until all people in a queue have exercised their G vote. But as we were told, it was envisaged that there would be no such overflow to the next day.

And that is why a polling station was to take a maximum of three hundred registered voters. I answer the eight issue in the affirmative.

H I will jump the ninth issue which is normally adjudicated at the end of civil litigation -- it is to what reliefs are the parties entitled to.

There is a body of submissions from both sides on what appears to be a synthesis of malpractices which, in the course of hearing the petition, have cropped up and which the Court cannot close its I eyes to.

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There are four typed pages of such submissions by Mr Ndyanabo, learned counsel for the A petitioner, and seven such typed pages by Mr Mwambegele, the learned state attorney for the Attorney General, the second respondent. Mr Masilingi's was the shortest. It has just a page.

In the course of hearing the petition matters have indeed cropped up which in the end we have to make findings on. I think we agree that the following matters have surfaced: B

1. Infiltration of Government Officials for purposes of spoiling the smooth running of the voting; C
2. Creation of an additional polling station at Nkomera (No 159/A/187) Kimea Health Centre without the knowledge of other participating political parties except CCM;
3. Unnecessary deployment of FFU (Field Force Unit) at Muleba during the addition or counting of the votes; and D
4. Creation of transit and processing centres.

These are issues which came to light and which either I have said very little of them in the judgment or not at all.

On infiltration of government officials for purposes of spoiling the smooth running of the voting, this E is what has been unfurled:

During the hearing of the petition, the Court came to know that the Returning Officer Mr Mtalo deployed the following people to participate fully in assisting him, but these have been found to have had no locus standi and a nomclature Assistant Returning Officer `Reserve' was created. The real F Assistant Returning Officers -- proper if I may use that word, who are on record to have been duly appointed and sworn were:

1. Mr Ndyaigati (not called to give evidence) G
2. Mr Kasika (not called to give evidence)
3. Mr Muchunguzi (not called to give evidence)
4. Mr Sing'ombe RW3

It is said that these were appointed by the Electoral Commission itself in Dar es Salaam. The H Returning Officer was empowered to appoint other cadres with specific titles. These were the polling assistants and presiding assistants. These were numerous.

But then there has come a complaint that others were also appointed to the Assistanty Returning Officers `reserve'. And these were: I

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A 1. Cyprian Minja (not called to testify)

2. Zuberi Masoud Mbyana RW5, The District Education Officer

3. Peter Hollybone Karugira RW10 the District Cultural Officer

4. F M Kaluleterwa RW6 the District Land Officer of Muleba District, and

B 5. The late Philip Chawe.

These were appointed by the Returning Officer as `reserve'. In trying to probe the authenticity and locus standi of these people, some oaths (Exh R3) were tendered in Court. These oaths have been C a subject of criticism. The petitioner's advocate Mr Ndyanabo has asked the Court to see them as forged oath certificates. The reasons for asking these certificates to be regarded as forged are the following:

D 1. That Karugila, RW10, did not tell exactly which type of magistrate swore him in. At first, he said the District Magistrate swore him. When he was shown his alleged certificate of oath, which shows that it was the primary Court Magistrate who swore him, he changed the story and said that it was the Primary Court who swore him. Now, this man is a District E Cultural Officer who completed standard 12 at Grewal Secondary School. He went to a Teachers College and obtained Grade `A' Teaching Certificate. I do not believe that such a person would not know the difference between a primary Court Magistrate and a District F Magistrate.

2. Whereas Mr Karugila was in confusion as who to had swore them in, Mr Ephraim Kaluleterwa, RW6, the other `reserve' officer, said it was the District Magistrate Mr Mashauri who swore them at the District Commissioner's Office. And yet, the same Mr G Mtalo RW9, when cross examined by Mr Ndyanabo (page 136 of the typed proceeding -- way down) replied:

`Yes I know some people never took oath.'

H Now what comes clear to my mind is that these `reserve' officers never took oath at all. I therefore agree that RW3s tendered are forged documents. The Returning Officer must have realised late, after election, that his `reserve' officers never took oath. He must therefore have rushed to the primary Court for a late oath taking, not knowing that the perfunctory way he was I going about the matter would create more problems.

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It is therefore true that Civil Servants who had nothing to do with the election were made to A supervise the election: this was against s 3.7(4) of the Election Act 1985 which says that:

`Every Returning Officer and Assistant Returning Officer (note there is no Assistant Returning Officer or: Reserve' Officer) shall, before embarking on the functions of that office during any election, take and subscribe to an oath or B secrecy in the prescribed form before a magistrate.'

For purposes of completion on this issue of Government Officials infiltrating without mandate, I must single out one particular official, Mr Karugila. This person was the most troublesome, I am C sorry to say. It was said by Kashaju Bazigiza PW7 that this person was:

`Opening big envelopes. He was opening envelopes of rubber stamps, papers, RF2s and candles and pouring them on the table.' D

This is the person who, again, was attacked very vehemently by Philip Byombalirwa, PW27. The opposition group had put up a case refusing Karugila from having any connection with the election. Philip had said of Karugila. E

`I had a problem with Karugila. He had tampered with previous elections. People saw ... We did not like the behaviour of Karugila. We had put up an objection to Mr Karugila. I notice that the Returning Officer picked him.' F

These allegations were not seriously controverted by the Respondents apart from saying that there were a lot more other people who were listed out by the Byombalirwa group as being not fit to supervise the election as polling assistants or polling agents. Mr Mtalo, in fact, informed the Court G that, if he was to listen to these allegations, he would have nobody to act as polling assistants or polling agents.

I think there was enough evidence to show that Karugila was seriously opposed by the NCCR group and other parties. Mr Mtalo could have easily pulled out Karugila, thus demonstrating to the political H parties that he was bent on making the election free and fair.

Karugila himself came into the witness box and spent considerable time testifying. He was not impressive. He was, in fact, very uneasy. While in the witness box while being cross examined by I Mr

A Mwambegele on the bad picture given of him by the opposition side, especially Philip Byombalirwa, he only hit back by saying that Philip Byombalirwa had abused him. He said at one time at Nshamba:

`Wewe na ufupi wako toka hapa.'

B And the same Karugila called Philip Byombalirwa a `mad' man.

Mr Mwambegele submits that

`these [Karugila and the rest] were appointed as polling assistants but were put reserve at the transit points to C await any assignment from the Returning Officer in case of any emergency'.

That is not true. The naked fact is that Mr Matalo allowed them to do what they did without lawful mandate.

D I will, at the end of this judgment, say something on Government Officials who deliberately become over zealous in elections.

The next issue that cropped up in the course of the trial was the deployment of FFU at Muliba during the addition.

The OCD (Officer Commanding District) of Police Muleba Mr Ndegera RW2 confirmed that he E deployed FFU to the scene of addition of votes and counting. According to him, he called them to be `stand by.' He went further to state that the FFU did not beat people.

F But there is evidence on record from Bagenda, that FFU came to the scene in combat gear and were chasing every one from the scene, including Bagenda himself. I am satisfied that FFU were deployed for reasons of intimidation. This was contrary to fair practice in a fair and free election. The ordinary policemen who were there, including the policewoman, D/Cpl Judith, RW4, were G adequate for purposes of maintaining peace.

It is common knowledge that FFU are mainly concerned with riots. Therefore their deployment was deplorable.

I have already said something about creating transit points en-route to Muleba District H Headquarters. I have also held that they were so put up and, indeed, there, RF2 forms, were retrieved. This was a practice against the instructions from the Electoral Commission.

Now, the biggest question comes: Have all these malpractices, in their cumulative form affected the results of Muleba South, to the extent that they were not free and fair and that, therefore, the results I should be nullified? That is the question.

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Mr Masilingi, the first respondent and the incumbant member of parliament for Muleba South has A submitted that they should not as he himself never got involved. He argued that he never was a party to any malpractice. He said he was cooperative throughout. In any case he is a lawyer, he argued, and would know the dire consequences of malpractices in an election. B

Mr Bagenda, the petitioner, in his evidence on the other hand pointed out that in election petitions the question is not whether the winner became part and parcel of the fraud. The main issue is whether the entire election could be termed free and fair. I add that parties, or contestants may be absolved from any malpractice. But if the whole electoral process gets marred by irregularities and C malpractices whose cumulative effect make the whole election unfree and unfair, a Court of law must declare the elections void, and I must hasten to add, that this is not unnecessarily setting high standard in our electoral process. I would therefore vehemently disagree with the remarks made D recently in Zanzibar by a reputable English journalist, David Martin, who, in a paper he read at a seminar there, the paper being titled `Democracy versus Diplomacy: the case for a Dialogue in Zanzibar.' said:

> `. . . sadly in Africa it is rare for a loser to accept defeat without saying the elections have been rigged, staging or E planning a coup detat, or going to Court. All too often individual ambitions ignore the collective good'. (Reported in Sunday News of 13 July 1997).

That is absolutely not true. F

It is now time, at this earliest opportunity, to impress upon society that, as my brother Lugakingira J said in Warioba's case supra:

> `. . . the franchise is the very cornerstone of democracy; it is the one right, perhaps more than any other, upon which G all other constitutional rights depend for their effective protection'.

The petitioner, Mr Bagenda himself, put it this way: absolving his adversary, the incumbent member of parliament the Hon Mr Wilson Masilingi, he has said, observations to which I entirely agree with, H that in this country:

`We are trying to build democracy. Some things must be corrected as early as this, before it becomes to late. We are fighting for a good system.' I

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A I have answered practically all issues framed, in the affirmative. But before I end, I should perhaps put on record that in all these irregularities and malpractices, the culprit has been the Returning Officer Mr Mtalo and his assistants. It could be nothing but over zealousness and a sheer lack of responsibility. I must also single out Mr Mpole, the District Security Officer, who for reasons B best known himself but which border on childishness, burnt demonstration posters.

I end by saying that the irregularities and malpractices I have pointed out in this judgment went to the root of the election, making the whole process meaningless and thus making the election not C free and fair. I have every hope that in future, if not now, government officials who, because of over zealousness mar or spoil the smooth conduct of elections be disciplined.

I allow the petition and declare the parliamentary elections held in Muleba South in November 1995 D null and void and it is set aside. The petition is allowed with costs to be taxed.

But, as I have found the first respondent, Wilson Masilingi, not concerned with these irregularities and malpractices, I order that he be awarded costs by the Attorney General. These costs will also E have to be taxed.

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[zRPz]ARCADO NTAGAZWA v BUYOGERA BUNYAMBO 1997 TLR 242 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Kisanga JJA, Mfalila JJA and Mroso AgJA

G CIVIL APPEAL 51 OF 1996

26 August 1997

H (From the judgment and decree of the High Court of Tanzania, Tabora, Mackanja J)

Flynote

Civil Practice and Procedure - Trial - Adjournment - When to be granted

I Civil Practice and Procedure - Court - Reasonable apprehension of bias

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-Headnote

The appellant had been elected as a Member of Parliament but the election was nullified on the A ground, as found by the court in an election petition, that the appellant was a foreigner. In an appeal against the court's decision the appellant contended that the court had erred in dismissing the appellant's application for an adjournment of the petition; that the Court had erred in

proceeding to hear the petition in disregard of the apprehensions of bias expressed by the appellant; that the judgment had been entered without due regard to the principles of natural justice; and that the B evidence relied upon by the judge was either inadmissible or inadequate to sustain the findings.

Held:

(i) That the trial judge had acknowledged that the appellant had experienced problems with his previous advocate who had been bereaved. Despite these problems a second C advocate was briefed within a short period. Given the appellant's duties as a member of the Parliamentary Probe Committee it was conceivable that he had had little time to brief his advocate. In the circumstances he had not acted unreasonably and the court ought to have granted the adjournment; D

(ii) The appellant was justified to apprehend that he would not get a fair deal from a judge who was prepared to urge the appellant's advocate to proceed with the conduct of the case notwithstanding that the advocate had insufficient instructions and briefing from the appellant. The appellant's apprehension became even more apparent after what happened E immediately after the judge had ruled against him in the adjournment application and the advocate gave immediate notice of her intention to appeal against the judge's ruling with a request to be supplied with a copy of the ruling. Once the formal notice of intention to appeal had been lodged in the Registry the trial judge was obliged to halt the proceedings at once and allow for the appeal process to take effect: the course adopted by the judge F had effectively thwarted the appeal. The appellant's apprehension of bias was accordingly justified;

(iii) In wrongly dismissing the application for adjournment and proceeding to hear and determine the case after hearing only the petitioner's case, the trial judge thereby G condemned the appellant unheard. This was a serious matter especially as the issue of the appellant's election and citizenship being adjudicated upon were of great constitutional importance.

Case Information

Appeal allowed and proceedings of trial court declared null and void. H

Dr Mwaikusa for the appellant.

Kayaga for the respondent.

[zJDz]Judgment

Kisanga, JA

This is an appeal against the decision of the High Court (Mackanja, J) nullifying the election of the I appellant as a Member of

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KISANGA JA

A Parliament for Muhambwe constituency during the 1995 general election. The election was nullified on the ground that the appellant, Mr Arcado Dennis Ntagazwa, is a foreigner ie a citizen of Burundi, and hence a person not qualified for election as Member of Parliament under our law. Before hearing this appeal we heard a preliminary objection raised by the respondent on the ground that the appeal was incompetent in that it was unaccompanied by the drawn up

decree. We B overruled the objection orally, and written reasons for doing so have already been given separately. In this appeal the appellant was represented by Dr J T Mwaikusa, learned advocate, while Mr K E Kayaga, learned advocate, appeared for the respondent. Mr Kaduri, learned Principal State C Attorney, appeared as Amicus Curiae.

The respondent had filed a petition in the High Court to oppose the appellant's election as Member of Parliament for Muhambwe constituency. After a ruling on 10 April 1996 on some preliminary D objections to the petition, the matter was set down for hearing on 4 November 1996. Subsequently, however, and for reasons which are not recorded on the file, the hearing was re-scheduled for 2 September 1996, 9 September 1996 and then 16 September 1996. Following the long adjournment of 10 April 1996 to 4 November 1996 the appellant had accepted the appointment as a member of a E Parliamentary Probe Committee to investigate allegations of corruption against some senior Government and CCM officials.

When the new hearing dates were communicated to the appellant, the appellant informed the Court F that the new dates were unsuitable and asked for further adjournment, but when it became evident that the trial judge was not prepared to adjourn the case beyond 16 September 1996, the appellant sought to have the case transferred to another judge but in vain. The trial judge, therefore, G proceeded to hear the petitioner's case, consisting of nine witnesses, in the absence of the appellant or his advocate at the end of which, as stated earlier, he allowed the petition and nullified the appellant's election as Member of Parliament.

In seeking the adjournment the appellant had advanced two main grounds. First, he said he had run H into problems with his advocate who had lost her husband and, acting on the advice given to him by the court on 27 August 1996 in that regard, the appellant engaged another advocate, one Mrs W Gama, on 10 September 1996, but had not had time to give full instructions to her. Thus on 16 September 1996 Mrs Gama appeared in court with limited instructions to ask for adjournment I pending full instructions and briefing from

the appellant, but her plea for adjournment was refused and she had to withdraw from the A proceedings.

The appellant's second ground for seeking the adjournment arose from his appointment to the Parliamentary Probe Committee. The appellant disclosed to the court that he had accepted that appointment relying on the hearing date of 4 November 1996 as originally fixed by the court, by B which date the Probe Committee would have finished its work. So that the re-scheduling of the hearing dates to 2 September 1996, 9 September 1996 and 16 September 1996 put the appellant in a difficult position as it came only after the Probe Committee had commenced but before completing its mandate. C

In advancing this ground, the appellant referred the trial judge to two cases involving similar circumstances. These were the two election petitions in Dar es Salaam involving Mr Iddi Simba and Dr Masumbuko Lamwai, respectively. Like the appellant, Mr Simba and Dr Lamwai were members of the said Probe Committee, and their respective cases had been adjourned pending completion D by the Probe Committee of its assignment. Additionally, the appellant

complained of bragging by some people among whom were some of his opponents especially in Muhambwe constituency, that the appellant stood no chance of winning the petition because they had bribed the judge. E

The appellant, therefore, asked for the transfer of the case to another judge as he apprehended that in these circumstances he would not get a fair hearing before the trial judge. However, the learned judge, in a lengthy Ruling, and obviously being carried away by emotion at times, discounted all the F points presented to him by the appellant and, having refused to grant the adjournment, proceeded to hear the petition in the absence of the appellant or his counsel, nullifying the appellant's election in the end on the ground that the appellant was a non-citizen of this country. It is from that decision that this appeal now arises. G

Dr Mwaikusa has filed four grounds of appeal. The said grounds together with the accompanying prayers are set out below:

`1. That the learned trial judge erred in law when he dismissed the Appellant's application to adjourn the H hearing of the petition;

2. That the learned trial judge erred in law when he proceeded to hear the petition in disregard of the apprehensions of bias expressed by the Appellant;

3. That the judgment and decree have been entered without due regard to the principles of natural justice; I

A 4. That the evidence relied upon by the learned trial judge was either inadmissible and/or inadequate to sustain the findings and decision entered thereto.

It is proposed to ask this Honourable Court of Appeal to allow this appeal and issue orders that:

B (a) The judgment and decree, as well as the proceedings of the trial court subsequent to 16 September 1996, be quashed and the petition be heard de novo;

(b) The status quo ante be restored;

C (c) The Appellant be paid the costs of this Appeal;

(d) The Appellant be awarded any other relief as this Honourable Court may deem fit and just.'

Dr Mwaikusa, with the leave of the Court, amended the memorandum of appeal by adding an D alternative prayer to prayers (a) and (b), which alternative prayer is for:

`An order reversing the decision of the trial court and declaring that the 1995 election of the Appellant as the E Member of Parliament for Muhambwe constituency was proper and valid.'

We now turn to consider the grounds of appeal separately, starting with the first ground which alleges that the trial judge erred when he refused to adjourn the hearing of the petition. The trial F judge had acknowledged that the appellant was having problems with his previous advocate who had been bereaved, and the trial judge had duly advised the appellant to find another advocate. The advice was given on 27 August 1996 and, accepting it, the appellant instructed

another advocate on 10 September 1996. In other words, the appellant, accepting the judge's advice, engaged another G advocate in a matter of two weeks.

The advocate who was engaged on 10 September 1996 could not be given full instructions and briefing, and therefore she was asked to travel from Dar es Salaam to Kigoma and enter appearance in court with a request for adjournment pending full instructions and briefing from the H appellant. The appellant cannot be said to have acted unreasonably here. First considering the expenses involved to hire the service of counsel, it is not surprising for the appellant to say that he could not raise the full advocate fees within two weeks especially after the hearing date was brought I forward from 4 November 1996 to 2 September 1996.

Again considering that the appellant was serving on the Parliamentary Probe Committee, it is A conceivable that he had very little time, as indeed pleaded by him and confirmed by his advocate, between 10 September 1996 and 16 September 1996, to brief his advocate in sufficient detail on what happened during the election process. B

Nor can the appellant be said to have unreasonably absented himself from court on 16 September 1996. He was serving on the Parliamentary Probe Committee. As stated before, he had accepted appointment to that Committee in reliance of the original date of 4 November 1996 fixed by the court for the hearing of his case. Had the court adhered to that date the appellant would have completed C his assignment with the Committee in time for the hearing of his case. The appellant was therefore justified in asking for adjournment pending completion of his assignment with the Committee which he had taken up relying on the original hearing date of his case as fixed by the court. Not only that, Mr Simba and Dr Lamwai who were also serving on this Committee, had their D respective election petitions adjourned by the High Court pending completion of the work of the Committee. Whether the decision to grant those adjournments was right or not, the appellant would have every reason to think that his request for adjournment would equally be granted. He cannot E therefore, be said to have acted unreasonably in seeking the adjournment.

The trial judge was fully appraised of all these matters through the correspondence sent to the court by the appellant. We think that the trial judge wrongly disregarded them when he refused to grant F the appellant's application for adjournment.

The second ground of appeal criticises the judge for proceeding to hear the case notwithstanding the apprehension of bias expressed by the appellant. Again we find merit in this complain. As stated earlier, the appellant managed to engage another advocate within fourteen days after being advised G by the court to do so. But although the said advocate engaged in so short a time pleaded with the judge to grant an adjournment to enable her to obtain the necessary instructions and briefing from the appellant, the judge completely refused and proceeded to hear the case. The appellant was H justified to apprehend that he would not get a fair deal from a judge who was prepared to urge the appellant's advocate to proceed with the conduct of the case notwithstanding that the advocate had insufficient instructions and briefing from the appellant.

Indeed the appellant's apprehension or fear becomes even more I

A apparent in the light of what transpired immediately after the judge had ruled against granting the adjournment. The appellant's advocate immediately gave oral notice of her intention to appeal against the judge's ruling with the request to be supplied with a copy of the ruling. This was followed B by a written notice of intention to appeal addressed to the Registrar and accompanied by request for proceedings, with copies to the court case file and the opposite parties. This notwithstanding, however, the judge immediately proceeded to hear the case until he completed it. He did not pause or stop to allow for the appeal process against his ruling to take effect. Although a formal notice of C intention to appeal was duly given, with a copy to the court case file, there is no evidence that the copy of proceedings which the appellant's advocate had requested for the purposes of the appeal was supplied even though the judge endorsed on the file that the appellant's advocate should be D supplied with the same; and indeed there is no indication that the judge who immediately proceeded to hear the case ever released the case file for the typing out of the proceedings. Be that as it may, it is clear from the judge's ruling that the intended appeal initiated by the notice in question never materialized.

E It must be pointed out that the learned judge acted improperly here. Once the formal notice of intention to appeal was lodged in the Registry the trial judge was obliged to halt the proceedings at once and allow for the appeal process to take effect, or until that notice was withdrawn or was deemed to be withdrawn. But the course adopted by the judge here effectively thwarted the appeal. F That was wrong, and had the correct procedure been adopted the present proceedings might not have been necessary.

Thus the appellant's apprehension of bias was justified in those circumstances; he could not be certain that the judge who was capable of frustrating his appeal would act fairly and impartially in G hearing the petition. Consequently, we are satisfied that his request for the transfer of his case to another judge was wrongly refused by the trial judge.

H The third ground of appeal criticises the trial judge for violating the principles of natural justice. We have to say at once that this complaint is amply justified. In wrongly dismissing the appellant's application for adjournment and proceeding to hear and determine the case after hearing only the petitioner's case, the trial judge thereby condemned the appellant unheard. This was a serious matter, especially as the issue of the appellant's election and citizenship being adjudicated upon I were of great constitutional importance. We

therefore have no difficulty at all in upholding this ground of appeal. A

To sum up so far, we have found that the trial judge wrongly dismissed the appellant's application for adjournment, especially after the appellant had expressed reasonable apprehension of bias on the part of the trial judge. We have also found that following such refusal the judge wrongly B proceeded to hear and determine the election petition in total disregard for the principles of natural justice. The effect of these errors was, in our view, to render the proceedings a nullity starting from the day they were continued in the absence of the

appellant or his counsel. Consequently we allow C prayers (a) and (b) of the memorandum of the memorandum of appeal. Accordingly it is ordered that the proceedings of the trial court subsequent to 16 September 1996 are hereby declared null and void, and that as from that point the petition be heard de novo before another judge. It is further ordered that pending the final disposal of the petition as ordered, the status quo ante of the parties D is hereby restored.

Having taken this view of the matter, it is now neither necessary nor proper to consider the alternative prayer calling upon us to review the decision of the trial judge on the merits and find that the appellant was duly elected Member of Parliament for Muhambwe constituency. It is for this E reason that we shall not consider ground four of the memorandum of appeal.
In the result, therefore, this appeal is allowed with costs.
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[zRPz]ARUSHA KALWA AND FIVE OTHERS v WILBROAD SLAA AND ANOTHER 1997 TLR 250 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Mfalila JJA, Lubuva JJA and Samatta JJA

B
CIVIL APPEAL 29 OF 1997
26 September 1997
C (An appeal from the ruling of the high Court of Tanzania, Arusha, Nchalla J)
Flynote
Elections - Election petition - Scrutiny and recount - Scrutiny by way of recount not legally competent relief
D Elections - Election petition - Law to be applied - English law not applicable
Elections - Election petition - Scrutiny - Nature of relief
-Headnote
The appellants were the unsuccessful petitioners in the High Court in an election petition. The relief E sought in the High Court was for a `scutiny by way of recount'. The judge in the High Court held that the relief sought was misconceived and incompetent in law and the application was therefore dismissed. The issue for determination on appeal was whether the relief sought was available under the Elections Act, 1985.
Held:
F (i) The matter had been complicated and confused by the manner in which the relief sought had been handled at the trial: scrutiny and recount had been confused as issues;
(ii) The element of recount was not provided for under the Elections Act. Whether the English law concept applied in Tanzania was governed by the Judicature and Application of Laws G Ordinance, Chapter 453, which prescribed two conditions, viz that the statute

concerned had to be of general application and there should be no specific legislation in Tanzania dealing with the matter in question. In the instant case neither condition was met;

(iii) Section 112(d) of the Elections Act provided that scrutiny could be obtained where a seat H was claimed for a candidate on the ground that he had a majority of lawful votes. In the present case it had not been indicated in the pleadings that any of the unsuccessful candidates had a majority of votes. Scrutiny had in fact been sought in such generalised form that it amounted in effect to re-doing the whole exercise of counting the votes in the whole constituency;

I (iv) Recount was not one of the reliefs set out under s 112(d) and it was logically incorrect to introduce in the pleadings the element of a

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recount of votes as a relief in an election petition. As regards scrutiny, the application was A properly rejected on the grounds that the conditions under s 112(d) of the Act and Rule 12 of the Elections (Election Petitions) Rules, 1971 were not satisfied.

Case Information

Appeal dismissed.

Musei for the appellants. B

Maira, Mirambo and Mrs Lyimo for the respondents.

[zJDz]Judgment

Lubuva, JA

On 29 October 1995, general elections were held in this country. This involved parliamentary and presidential elections. In the Karatu constituency, the first respondent, Dr Wilbroad Peter Slaa, a C candidate sponsored by the political party Chama cha Demokrasia na Maendeleo, commonly known by its acronym Chadema, was declared to be the elected member of parliament. The appellants as registered voters, were dissatisfied with the results of the election. They filed an D election petition in the High Court at Arusha ie Miscellaneous Civil Cause No 9 of 1995. From the pleadings, the petition sought among others, the following reliefs: First, the election results in Karatu Constituency to be declared null and void. Secondly, an order for a scrutiny by way of recount. The E Honourable the Attorney General was joined as the second respondent among the parties.

Before the trial commenced, the Court ordered the issue regarding scrutiny to be tried first. During the trial on the issue on scrutiny, the petitioners, the appellants in this appeal, applied for leave to F amend para C in the petition regarding reliefs. As a result, para C was amended by substituting the words `scrutiny by way of recount' for the words `recount of the votes.' At the conclusion of the trial on the issue of scrutiny, the learned judge (Nchalla, J) held that the relief sought for scrutiny by way of recount of voters was misconceived and incompetent in law. The application was therefore G dismissed. This appeal is against the order of dismissal.

In this appeal, the appellants are represented by Mr Musei, learned Counsel. The first respondent, Dr Wilbroad Peter Slaa, is represented by Mr Maira and Mr Mirambo, learned advocates. The H second respondent, the Honourable the Attorney General, is represented by

Mrs Lyimo, learned Principal State Attorney. A seven point memorandum of appeal was filed. In paragraphs 6 and 7 of the memorandum of appeal it is stated:

6. The Honourable trial Judge misdirected himself in law in dis- I

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A criminating against the voter petitioner respecting the relief of scrutiny under s 112 of the Elections Act No 1 of 1985.

7. That the Honourable trial judge further erred in law in wrongly interpreting and applying the term `scrutiny'.

B From the totality of these grounds, it is our view that one central issue is raised in this appeal. That is, whether the relief sought, namely scrutiny by way of recount of votes is available under the Election Act, 1985. Mr Musei, learned Counsel, strongly contended that the learned trial judge erred in law in not ordering a recount of votes as sought in the reliefs. The reason he stated, was that C while it is conceded that the Election Act, 1985 does not provide for the recount of votes as a relief in an election petition, still he maintained, the relief could be granted by applying the English law. In support of this submission he referred the Court to the book by the distinguished authors, Norman D and Schefield on Parliamentary Elections, Third Edition at page 536 wherein `scrutiny' is described as follows:

`Scrutiny is the term used to describe a reviewing of ballot papers following an order of the Court.

E The petitioner, respondent, their Counsel, solicitors and agents are at liberty to be present at the inspection which takes the form of a recount.

Each side makes its own list of ballot papers which it objects to or claims to be added.'

F On the basis of this authority, Mr Musei further submitted that as the law in Tanzania provides for the relief of scrutiny in an election petition and not a recount, a wide interpretation should be given to the word scrutiny under the English law. He went on in his submission, by applying the English law G under the provision s 2 of the Judicature and application of Laws Ordinance, Chap 453, the relief of a recount would be available as urged by the petitioners, the appellants in this case. That is so, he insisted, because, under the English law, scrutiny takes the from of a recount.

H Mr Maira, learned Counsel for the first respondent was quick to respond to these submissions. He said, Mr Musei's resort to apply the English law is misconceived. As there is a specific legislation governing elections in Tanzania, he stated, the English law cannot be applied. Furthermore Mr Maira urged, by virtue of the Judicature and Application of Laws Ordinance, Chap I 453, in appropriate

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situations, the English Statutes which would be applied in Tanzania are statutes of general A application. In this case, Mr Maira maintained, the law on elections is not a statute of general application in which case, it would not apply in Tanzania. Addressing himself at length on the law relating to elections in Tanzania Mr Maira stressed that as the conditions set out under s 112

(d) of B the Elections Act 1985 and Rule 12 of the Elections (Election Petitions) Rules 1971 were not satisfied, there was no legal basis for ordering a scrutiny. Mrs Lyimo, learned Principal State Attorney for the second respondent fully associated herself with Mr Maira's submissions. C

As already indicated, the issue in this appeal is whether the relief of a scrutiny was, in the circumstances, available. We wish to make it clear from the outset that it is apparent from the record that in dealing with the issue of scrutiny, the matter was further complicated and confused D by the manner in which it was handled at the trial. As a result, it seems to us that throughout the proceedings on the issue of scrutiny, the learned judge, with respect, confuses scrutiny on one hand and recount on the other. From the record, the sequence of events in the proceedings bears this out. Before the commencement of the trial, the Court ordered the issue on scrutiny to be tried first. What is more, it is also apparent that at some stage, while the issue on scrutiny was still being E tried, the court also allowed an amendment to be effected in the pleadings. The amendment so effected, in our view, introduced a new element to the pleadings. That is, the relief of `scrutiny' as originally sought, was further qualified by adding the words `by way of recount'. The new element of F a recount, as we have observed, is not provided under the Election Act, 1985 as one of the reliefs to be sought in an election petition. Yet, with due respect to the learned trial judge, he allowed the amendment which, to some extent, contributed towards the confusion that ensued in the proceedings that culminated in the ruling, the subject of this appeal. We shall revert to this issue G later.

We shall next deal with the issue whether the English law would be applicable in order to avail the relief of a recount. Mr Musei learned Counsel firmly maintained that it would. With respect, we do H not agree. There is no gainsaying that under the Judicature and Application of Laws Ordinance, Chap 453, two conditions are necessary for an English statute to apply in Tanzania. First, the statute concerned must be a statute of general application. Secondly, there should be no specific legislation enacted in Tanzania dealing with the matter in question. In the instant case, the first I condition is not

A satisfied because, the legislation involved is not a statute of general application. The second condition is not met either.

This is because in Tanzania there is the Elections Act, 1985 which specifically provides for election matters. In that situation, we can find no basis for applying the English law in Tanzania as B contended by Mr Musei. Consequently, we are in agreement with Mr Maira, learned Counsel for the first respondent that the applicable law in this case was the Elections Act, 1985. In our considered opinion, the English law on parliamentary elections though in part is similar to the Elections Act, C 1985 of Tanzania is not applicable for the reasons we have already given. Having this view, it follows that we are of the view that the amendment to the pleadings in this case which was effected on the authority of the English law, was misconceived under the law in Tanzania.

D Next, we intend to address on the question of scrutiny. This is one of the reliefs that may be claimed under s 112 (d) of the Elections Act, 1985. The question is whether in terms of the provisions of this Act, scrutiny as sought in the petition was warranted. The learned trial judge held that the conditions set out in the Act were not satisfied for which reason, Mr Musei, raises serious E complaint of dissatisfaction. In part, s 112 of the Act provides:

`(a) ...

(b) ...

(c) ...

F (d) Where the seat is claimed for an unsuccessful candidate on the ground that he had a majority of lawful votes a scrutiny'

(emphasis supplied)

From the provisions of sub-clause (d) of s 112 of the Elections Act, 1985, a necessary requirement G is that the pleadings should indicate that a named particular candidate who was unsuccessful in the election had a majority of lawful votes. In other words, if certain identified votes which are objected to are to be added, such an unsuccessful candidate would be the winner. In the case before us, apart from the prayer for scrutiny which was, as already pointed out, qualified with the H request for a recount of votes, it is not indicated in the pleadings that any of the unsuccessful candidates, had a majority of votes. Because of this omission in the pleadings, the learned trial judge held that the application was misconceived in terms of s 112 (d) of the Election Act, 1985. He I addressed himself in these words:

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LUBUVA JA

`On a careful interpretation of the above quoted provisions in relation to this petition on the issue of scrutiny, I find A that the petitioners did not comply with Section 112(d) of the Elections Act in that they omitted to plead in their petition that a particular unsuccessful candidate in the Karatu Parliamentary elections had a majority of lawful votes.

... Four of the candidates were defeated. Now which one of these four unsuccessful candidates are the petitioners B claiming for scrutiny to be held in his favour?' (Emphasis supplied).

In considering the requirements of the law under s 112(d) of the Act as shown in the above extract of the judgment, the learned judge took into account further conditions which are provided under C Rule 12 of the Elections (Election Petitions) Rules 1971 which provides:

`12 (1) -- `Where scrutiny under the provisions of paragraph (d) of s 112 of the Act is sought wither by the petitioner D or a respondent, the party seeking such scrutiny shall not less than six days before the day fixed for the hearing of the petition, lodge with the Registrar a list of votes intended to be objected to by him and of the objections to each vote. . . . ' E

To our minds, the provisions of this Rule are clear and unambiguous. It is a mandatory requirement that in processing the petition, the party seeking scrutiny shall lodge with the Registrar of the High Court a list of votes intended to be objected to not less than six days before the date fixed for F hearing the petition. In here, no list at all of votes intended to be objected to was lodged, let alone the time prescribed of not less than six days before the day fixed for

hearing the petition. With great respect, it is ridiculous and impractical to seek a scrutiny of all the votes in the whole constituency of Karatu as Mr Musei was apparently endeavouring to do in this case. That, to our minds, was not G the objective of the legislature in providing in the Elections Act, 1985 for scrutiny. Needless to overemphasize, scrutiny is aimed at disputed and specified votes which are the subject of scrutiny in order to ascertain the claim by the petitioner that he had a majority of votes. In sum total, in this H case, scrutiny was sought in such generalised form that it amounts in effect to re-doing the whole exercise of counting the votes in the whole constituency. For that reason we are satisfied that the learned judge was justified in his conclusion that the conditions set out under s 112(d) of the Elections Act, 1985 and Rule 12 of the Election Rules, 1971 I

A were not satisfied. We cannot accept Mr Musei's claim that the omission in the pleadings to specify that a particular unsuccessful candidate among the petitioners had a majority of lawful votes was a mere slip. It is a fundamental and mandatory requirement which goes to the very root of the matter with which failure to comply renders the granting of scrutiny untenable. Such, we are B satisfied, was the position in this case. That being the legal requirement which was not complied with, we are unable to accept Mr Musei's assertion that the learned judge erred in holding that the C prayer for scrutiny by recount of the votes was legally misconceived and incompetent.

At this juncture, we pause to consider the distinction between recount and scrutiny. From the record, it is apparent that the learned trial judge referred to recount of votes and scrutiny D interchangeably. In order to clear the confusion, it is desirable to briefly address on the difference between scrutiny and recount in relation to the law. From the outset, it should be made clear that the two reliefs are distinctly different and available under the Elections Act, 1985 at different stages E of the process of counting of votes and the period after the declaration of the election results. These differences have to be looked into against the background of the major changes that have been effected on the Elections Act, 1985. It is common knowledge that the Elections (Amendment) F Act, 1990 and the Elections (Amendment) Act, 1992 together with other subsequent amendments were aimed at, among others, ensuring close supervision and monitoring of the process of voting by presiding officers, polling assistants and polling agents at every stage in the course of counting votes. In the process of counting votes Sections 78 and 80 of the Elections Act, 1985 provide for the G recount of votes at two stages. First, at the stage when the counting of votes is being completed at the polling station. At that stage a presiding officer may be requested for a recount of votes by the candidate or his counting agent present when the counting of votes takes place. Second, when the H addition of votes takes place at the office of the Returning Officer, the candidate or the polling agent present at the polling station may request the Returning Officer to check the addition in order to ascertain the accuracy of the disputed report of the results from the polling stations.

After the addition of votes and declaration of the results, the Elections Act, 1985 does not provide for I the recount of the votes. That is, s 80(3) of the Elections Act, 1985 for the last stage when a

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recount of votes is sought. For the period that follows after the declaration of the results, to seek a A recount of votes as a relief as it happened in this case would be untenable and misconceived in law. The period that follows after the declaration of results may well involve the time an election petition is filed in Court. It is common knowledge that in an election petition, one of the reliefs that may be claimed is a scrutiny. Section 112 (d) of the Elections Act, 1985 provides for scrutiny B among other reliefs. Recount is not one of the reliefs set out under this section. For this reason, it is in our view legally incorrect to introduce in the pleadings the element of a recount of votes as a relief in an election petition. On that basis and with due respect, we think the learned judge confused and mixed up the two reliefs which are, as already indicated, available at different stages. In part, he C stated:

`Consequently, on the totality of my findings based on the interpretation of the Election Act, 1985 I rule that the prayer for scrutiny by recount of the votes in the 1995 Parliamentary elections for Karatu Constituency is both D misconceived and legally incompetent.'

(emphasis added)

In our view, on the face of this statement, the general impression which emerges is that both the E reliefs for recount and scrutiny were legally incompetent. This, with respect, is not correct because, one of them, namely, scrutiny was a competent prayer allowed by law in an election petition. As already observed, it is the recount of votes that the law does not provide for. It was this relief which F was incompetent and misconceived in law because it was being sought at a stage when the law does not allow as correctly held by the learned judge. In short, it is our view that the two reliefs have been described in such a way that it is misleading and confusing. We are however, satisfied that as regards scrutiny the application was properly rejected on the grounds that the conditions under s G 112(d) of the Elections Act, 1985 and Rule 12 of the Elections (Election Petitions) Rules, 1971 were not satisfied. In the result, despite the mix up and confusion on recount and scrutiny, we agree with the final conclusion that scrutiny was not in the circumstances, available. H

In ground one, Mr Musei, learned Counsel had also raised the issue of res judicata. Having closely listened to his submissions it is apparent that he was not referring to res judicata in its strict sense as provided under s 9 of the Civil Procedure Code, 1966. Rather, we understand him to take the I view that it was a contradiction on the

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LUBUVA JA

A part of the learned judge to hold that the Court had no jurisdiction to grant a scrutiny contrary to an earlier ruling if the Court on 12 September 1998. With respect, we do not agree with Mr Musei, learned Counsel on this submission. As countered by Mr Maira, learned Counsel and Mrs Lyimo, B learned Principal State Attorney, we agree that there is no contradiction in

this ruling, the subject of the appeal and the earlier ruling by the learned trial judge as regards the issue of scrutiny. The reason is simple. That is, that the earlier ruling involved the issue whether the Court had jurisdiction to deal with the application for scrutiny. On that, the learned judge held and correctly so in our view, C that the Court had jurisdiction to deal with the matter. On the other hand, the issue involved in the ruling, the subject of this appeal, was whether in the circumstances of the case scrutiny was warranted. The learned judge was convinced that the requisite conditions were not satisfied for the D granting of scrutiny, and he dismissed the application. On our part, the legal position is so clear that the learned judge can hardly be faulted in his decision of this point. In the earlier ruling the judge was of the view that the Court had jurisdiction to deal with the issue while in the subsequent ruling E which gave rise to this appeal, the Court in exercise of its jurisdiction, dismissed the application on the grounds that there was no merit in it. In those circumstances, we are satisfied that there was no contradiction in between the earlier ruling and the one complained against in this appeal.
We reject this ground.

F In the result, and for the foregoing reasons, the appeal is dismissed with costs to the respondents. We also remit the case to the High Court for continuation of the hearing of the petition where we hope it will proceed expeditiously from the point where the ruling of the High Court of 25 G November 1996 was delivered.

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[zRPz]NATIONAL BANK OF COMMERCE AND ANOTHER v AHMED ABDERHAMAN 1997 TLR 259 (CA)

Court Court of Appeal of Tanzania - Tanga
Judge Makame JJA, Ramadhani JJA and Lubuva JJA

CIVIL APPEAL 18 OF 1995 B
26 September 1997
Flynote
Civil Practice and Procedure - Judgment - Consent judgment - Order XV Rule 1 C
-Headnote

The respondent had sued in the High Court for a declaration that an intended auction of certain property belonging to him was illegal and/or unlawful and in the alternative sought an order to avoid the guarantee agreements between himself and the first appellant. The appellants failed to file their D written statements of defence (WSD) and the matter was put before a judge who entered consent judgment against the appellants on both the main and alternative issues. On appeal it was argued that the judge had misdirected himself on the procedure of recording judgment on admission. It was contended that as there was no WSD there could not have been a first hearing. E

Held:

(i) In the absence of a WSD a judge could still ascertain admissions and denials in a first hearing. The judge could be taken to have acted under Order XV Rule 1 and had therefor given a consent judgment;

(ii) The judge had however erred in giving judgment in favour of the respondent on both the F main and alternative legs of the relief sought: the advocate for the appellant had conceded the first prayer only.

Case Information

Appeal allowed to the extent of the nullification of the intended sale.

Mramba for the appellants. G

Dr Lamwai for the respondent.

[zJDz]Judgment

Ramadhani, JA

The Uhuru newspaper of 1 May 1993 carried a notice of the instructions of the first appellant, the National Bank of Commerce, to the second appellant, Ahmed Juma, to auction certain property H belonging to the respondent, Ahmed Abderhaman. Consequently the respondent sued for a declaration that the intended auction was illegal and/or unlawful and, in the alternative, but without prejudice to the first prayer, sought an order to avoid the guarantee agreements between himself and the first appellant. I

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RAMADHANI JA

A The plaint was filed on 10 May 1993 and on 18 May the appellants were given up to 26 May to file their written statement of defence (WSD). But that was not done. So, on 27 May, time was extended to 16 June but again in vain. However, on 17 June, Mr Akaro, learned advocate for the B appellants, asked the District Registrar to put the matter before a judge `for orders on a prayer to be made which might end up the proceedings immediately -- a probable settlement by consent is had in mind'. The matter was put before Msumi, J as he then was, who gave the following order which is the subject matter of this appeal:

C `In conclusion consent judgment is entered against both defendants. As prayed it is hereby declared that the intended sale by auction of the plaintiff's property to be illegal and unlawful. And consequent to this judgment plaintiff is hereby relieved of any liability arising from the purported guarantee. Plaintiff is entitled to his costs which D are to be taxed.'

The appellants have come with this appeal canvassing two grounds:

E 1. That the learned High Court Judge erred in law and fact by deciding on and entering judgment on matters not specifically admitted by the first appellant.

2. That the learned High Court Judge erred in law by grossly misdirecting himself on the F procedure of recording judgment on admission.

Before us the appellants were represented by Mr Mramba, learned advocate, and the respondent was represented by Dr Lamwai, learned counsel. Mr Mramba started with the second ground of G appeal and submitted that the procedure of recording judgments on admission as set out in Ord XII Rule 1 if the Civil Procedure Code was not followed. That order provides:

`Any party to a suit may give notice, by his pleading or otherwise in writing, that he admits the truth of the whole or H any part of the case of any other party.'

As already said, the appellants have not, to this moment, filed their WSD and so, they cannot be said to have admitted by their `pleading'. Mr Mramba merely made an oral admission before Msumi, I J. Therefore, that provision was not followed, as correctly ar-

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RAMADHANI JA

gued by Mr Mramba. However, the learned advocate conceded that he misled the learned judge as A he did not, in the first place, submit his admission in writing. Anyway that provision is there to be folowed.

Dr Lamwai, on the other hand, submitted that Ord XII Rule 1 was not applicable because the B learned judge used the phrase `consent judgment' and that means he dealt with the matter under Ord XV Rule 1 which provides:

`Where at the first hearing of a suit it appears that the parties are not at issue on any question of law or of fact, the court may at once pronounce judgment.' C

Mr Mramba objected to that and pointed out that as there is no WSD then there could not have been a `first hearing.' Dr Lamwai countered that by submitting that in the vocabulary of the Civil D Procedure Code there is no such thing as `mention' but that every meeting of the court is a `hearing'. The learned advocate submitted that mention is a creation of the courts and not a requirement of the CPC.

Admittedly, the CPC does not talk of mention but, without going into a discussion and determination E of when there can be a first hearing, we think that there can be a hearing without a WSD having been filed. This is clear from Ord X Rule 1 which Dr Lamwai cited in the alternative and/or in addition to Ord XV Rule 1. Now Ord XV Rule 1 provides as follows: F

`At the first hearing of the suit the court shall ascertain from each party or his advocate whether he admits or denies such allegations of facts as are made in the plaint or written statement (if any) of the opposite party, and as are not expressly or by necessary implication admitted or denied by the party against whom they are made. The G court shall record such admissions and denials.' (The emphasis is ours).

It is obvious that in the absence of a WSD a judge can still ascertain admissions and denials and that is done in a hearing, or to be precise in a first hearing. We, therefore, agree with Dr Lamwai that H Msumi, J could be taken to have acted under Ord XV Rule 1 and so, he gave a consent judgement.

However, that rule applies only where `the parties are not at issue on any question of law or of fact'. Can the parties in this appeal be I

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RAMADHANI JA

A said not to have been at issue on any question of law or of fact? This takes us to the first ground of appeal.

The appellants, in their first ground, complain that the learned judge erred in law and in fact by entering judgment on matters not specifically admitted by the appellants. Mr Mramba submitted

that B they only conceded the first prayer of the respondent which is an `order declaring the said announced intended sale by auction of the plaintiff's properties, scheduled for 15 May 1993, to be illegal and unlawful'. It is better, in order to appreciate fully this complaint, to reproduce what was said before Msumi, J by Mr Mramba, learned advocate for the appellants, and by Mr Msakamari, C learned counsel for the respondent.

Mramba:

`We wish to tell the court that we concede to the plaintiff prayers including main one as contained in 8th paragraph of the plaint. Since the other prayers are in the alternative, we submit that the same cannot be granted after we D have conceded to the main prayer.

We have been forced to take this position because plaintiff was a guarantor to loans taken from the first defendant's bank by M/s Mkwakwani Bazaar Ltd. Plaintiff guaranteed the loans. The intended sale of the plaintiff's E mortgaged property was made without issuing notice to the plaintiff as a guarantor. For this we feel that we have no case against the plaintiff ...'

Msakamari:

F `In the plaint, we have already denied the alleged guarantee. So an order should be made relieving the plaintiff of the said guarantee. And the consequence should be that the title deeds which are currently in the possession of the first defendant be restored to my client ...'

Mramba:

G `It is true that the plaintiff's title deeds are with the first defendant's bank. Unless the plaintiff made the alleged guarantee, one wonders why the said documents came into the possession of the bank. We concede that the intended sale of the house was illegal as no notice was given to the plaintiff.'

H Dr Lamwai conceded that the appellants admitted the first prayer but argued that Mr Mramba specifically told Msumi, J. `We wish to tell the court that we concede to the plaintiff prayers including main one as contained in 8th paragraph of the plaint.' Dr Lamwai pointed out that paragraph 8 of the I plaint is loud and clear in its denial:

`... the plaintiff deny any liability arising from the claimed transactions stated in paragraph 7 above and has already A communicated the said denial to the first Defendant ...'

Paragraph 7 of the plaint provides:

`That the said intended sale by auction is stated to be occasioned by an outstanding loan owed by Messrs B Mkwakwani Bazaar Limited to the bank, which is claimed by the first defendant to have been guaranteed by the Plaintiff. The first Defendant's letter Ref No NBC/54/10/214/Vol II dated 28 April 1993 forms Annexure `B' to this plaint.' C

Dr Lamwai contended that the combined effect of paras 7 and 8 is an unequivocal denial of liability under any guarantee agreement. So, he argued, when Mr Mramba conceded to the prayer contained in paragraph 8, he was conceding to a declaration that the guarantee agreements D between the appellants and the respondent were void.

We must confess that we found the submission of Mr Mramba before Msumi, J not easy to comprehend. Mr Mramba himself was not in a position to explain to us what he had meant by

some E of his utterances. With due respect to him, if he had done what he now seeks to fault the learned judge for not having done, that is, if he had followed Ord XII Rule 1 and had made his admissions in writing, he would have marshalled his thoughts and would not have strayed into this muddle. So, we F now have to figure out what was and what was not admitted.

As we have said, prima facie Mr Mramba could be taken to concede the avoidance of the guarantee agreements. But that is what was contained in the second prayer: G

`In the alternative, and without prejudice to the aforesaid prayers; an order declaring that the agreements between the plaintiff and the first defendant is void.'

Now, what the courts do when there is a main prayer and another prayer is asked in the alternative, H is not to grant both of them but to grant one or the other. This is why Mr Mramba said `Since the other prayers are in alternative, we submit that the same cannot be granted after we have conceded to the main prayer'. The main prayer being the declaration that the intended sale was illegal and/or unlawful. I

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RAMADHANI JA

A Admittedly, Mr Msakamari pointed out that the plaintiff has clearly denied in the plaint the alleged guarantee and asked Msumi, J, to relieve him of the said guarantee. However, Mr Mramba pointed out to the learned judge that `Unless the Plaintiff made the alleged guarantee, one wonders why the B said documents came into the possession of the bank'. This was after it was admitted that the bank was in possession of the title deeds. Mr Mramba went further to emphasise to the learned judge that `We concede that the intended sale of the house was illegal as no notice was given to the plaintiff'. (Emphasis is ours).

C From that labyrinth before the learned judge, it emerges that Mr Mramba conceded the first prayer only, that is, that the intended sale was illegal and/or unlawful for the simple reason that notice of the sale had not been given to the plaintiff. Mr Mramba did not concede to the avoidance of D the guarantee agreements between the appellants and the respondent. Instead he left that as a triable issue for the respondent to show why the appellants were in possession of the title deeds. We, therefore, do not agree with the learned judge that `consequent to this judgment plaintiff is hereby relieved of any liability arising from the purported guarantee.' That was not part of the E consent judgment. We certainly do not agree with the learned judge that:

`By conceding to the plaintiff's prayer for the nullification of the said sale, inferably defendants must be taken to F concede to plaintiff's denial that he is liable under the alleged guarantee.'

It is abundantly stated by the appellants that they conceded to the nullification of the intended sale because no notice of sale was given to the respondent.

G Therefore, and with all due respect, we uphold only that part of the judgment which declares the intended sale to be illegal and unlawful and we quash the rest. We order that the case goes back to the High Court to proceed with the matter. Of course, we are aware that the appellants have not filed their WSD and that the time given by the court to do that expired before the proceedings of 8 H July 1993. However we leave that matter to be dealt with by the court accordingly.

The appeal is allowed to the extend explained above. Costs follow the event.
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[zRPz]ZEE HOTEL MANAGEMENT GROUP AND OTHERS v MINISTER OF FINANCE AMD OTHERS 1997 TLR 265 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Makame JJA, Ramadhani JJA and Lubuva JJA

B
CIVIL APPEAL 18 OF 1997
26 September 1997
(An appeal from the decision of the High Court of Zanzibar, Zanzibar, Dourado AgJ) C
Flynote
Civil Practice and Procedure - Judgment - Review of - By judge suo motu - After becoming functus officio
-Headnote
The appellants had applied in the High Court of Zanzibar for certain orders relating to the issuing of D entry permits or special passes. The learned judge granted an order against the 11th respondent ordering him to issue an entry permit for two years and adjourned the matter for a few days to satisfy himself that the order has been complied with. At the resumption the judge approved a modification in terms of which renewable three months passes would be granted. On appeal E against this subsequent order,
Held:
(i) The judge was functus officio once he had given his original order and in the absence of an application for a review of his earlier decision he had no authority to so review it.
F
Case Information
Appeal allowed and original order reinstated.
Patel and Dr Lamwai for the appellants.
Salum for the respondents. G
[zJDz]Judgment
Ramadhani, JA
The appellants had applied in the High Court of Zanzibar for leave to apply for prerogative orders of certiorari, mandamus and prohibition against the Principal Immigration Officer (hereinafter referred H to as PIO) and the Labour Commissioner, that is the last two respondents. However, that was changed to an application for leave to apply for judicial review against all the twelve respondents. We could not find whether or not such leave was granted but there were a number of rulings given by the learned judge, not on procedure but on substance, giving instructions to the tenth and the I
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RAMADHANI JA

A eleventh respondents. Anyway, be that as it may, the appeal here is against some those rulings.

On 3 February 1997 the appellants filed a notice of appeal against five different rulings of the learned judge dated 29 October 1996, 12 December 1996, 6 January 1997, 9 January 1997 and 29 B January 1997. Now under Rule 76(2) a notice of appeal is required to be lodged within fourteen days of the date of the decision against which it is desired to appeal. So, the notice of appeal filed on 3 February 1997 is valid only for the ruling of 28 February 1997 and the advocates for the appellants conceded that.

C On 28 January 1997 Dourado, Ag J, gave the following order:

`[P.I.O.] is once again, and finally, ordered to issue an Entry Permit or Special Pass for two years. If he feels that he needs another meeting with the A.G. and the Applicants Counsel, he should arrange to see them immediately. He D should then comply with the order and then complain, if he so wishes.

I am adjourning to 28 January at 8.30 am to satisfy myself that the order has been complied with.'

E However, come 28 January, the learned judge prevaricated and issued another order:

`The above conditions guaranteed by the Deputy Attorney-General in the view of the court substantially meets with the spirit of the order of the court.

F I hope that there will be co-operation on both sides. Should any difficulty arise, Mr Patel should immediately get in touch with the Deputy Attorney-General Othman.'

The `above conditions' referred to in the ruling cited above are

G `A-G's Office and P I O undertakes to do the following:

(a) To give 3 months Pass renewable after 3 months.

(b) Process 1 will keep on being renewed until arbitration proceedings between Government and Zee Hotels Management is finally settled.

H (c) Pass holders will pay $100 each, renewal -- no fee payable. (For two years they would pay $400 each).'

Now Mr Patel and Dr Lamwai, the learned advocates for the appellants, submitted that the learned judge could not suo motu review his order of 24 January without there being an application for I review. The learned advocates pointed out that the learned judge

was functus officio. Mr Salum Toufiq, learned Senior State Attorney for the respondents, argued that A the order of 24 January was for the issue of entry permit or special pass for two years. However, Mr Salum continued to inform us that he had not consulted the PIO when he became party to the consent order and that while he eventually contacted him, they came to a workable understanding B which was reduced to the three conditions given above. We submitted that the conditions do substantially implement the order of 24 January. Mr Patel, on the other hand,

pointed out that he was not a party to that understanding and he was not allowed by the court to make any comments before the new order was given on 28 January. C

We agree with Mr Patel and Dr Lamwai that the learned judge was functus officio after he had given his order on 24 January in which he said `he is once again, and finally, ordered to issue an Entry Permit or Special Pass for two years' and that on 28 January he was going to satisfy himself that the order was complied with. As we have amply demonstrated, none of the two was done. And D worse, there was no application for review, yet the learned judge went on to review his previous order. Apart from that, there was an officer from the Immigration Department in the Court at the time of hearing this appeal and he assured us that if permits for two years are granted, that period or any remaining portion of it can be cancelled at any moment. Dr Lamwai, in response to our E question, said that the two years should be ordered retrospectively from the date Dourado, Ag J, gave the order.

We, therefore, allow the appeal, quash the order of 28 January and reinstate that of 24 January. The F PIO is to issue to the appellants with the necessary documents for two years from 24 January 1997. We order costs for one advocate only for the following reasons: one, costs were not prayed for two advocates and two, we do not think that this appeal needed two advocates. It is so ordered. G

1997 TLR p268

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[zRPz]SULEIMAN MOH'D v SUBASH GANGARAM AND OTHERS 1997 TLR 268 (HC)

Court High Court of Tanzania - Vuga
Judge Hamid CJ

B CIVIL APPLICATION 3 OF 1997

30 September 1997

Flynote

C Landlord and tenant - Statutory tenancy - Creation of - By previous statutory tenant - Rent Restriction Decree Cap 98 (Zanzibar).

-Headnote

The appellant was the landlord in a tenancy agreement, first with the respondents' late father, who died in 1995, and then with the respondents' late mother who succeeded her husband as statutory D tenant after his death. The respondents claimed in the trial court that they were entitled to succeed their late mother as statutory tenants.

Held:

(i) Section 24(1) of the Rent Restriction Decree, cap 98, recognised the creation of a statutory tenancy to arise from a previous valid tenancy agreement but did not envisage E the creation of a statutory tenancy from another statutory tenancy;

(ii) A statutory tenancy did not as of right pass to another statutory tenant upon the death of the previous statutory tenant;

(iii) The respondents could not be lawful tenants by inheriting the tenancy from their deceased F mother who had herself inherited it from her late husband merely by virtue of having lived in the premises with their mother. The respondents therefore were not statutory tenants;

(iv) Even if the respondents were statutory tenants as they claimed their tenancy was lawfully determined by their landlord, the appellant, giving a month's notice to that effect in G accordance with s 24(1) of the Rent Restriction Decree.

Case Information

Appeal allowed.

Patel for the respondents.

[zJDz]Judgment

H Hamid, CJ

This is an appeal from the decision of a Rent Restriction Board in which the respondents Subash Gangaram and three others had successfully sued the appellant one Suleiman Moh'd and won their case when the Board declared that they were lawful tenants of the demised premises.

I The simple facts of the events giving rise to this appeal are as

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HAMID CJ

follows: Subash Gangaram, Harish Gangaram and Banu Gangaram are the sons and daughters of A the family of the late Mr and Mrs Santobai Gangaram who died in 1995. Mr Santobai Gangaram had been a legal tenant of the demised premises belonging to the appellant for an unspecified period. That the late Santobai had been a tenant of the appellant is beyond any dispute, so also is B the fact that there existed no written tenancy agreement between them. An earlier attempt by the appellant to have the late Santobai evicted from the leased premises had failed in appeal to this court as the appellant had failed to provide the late Santobai with satisfactory alternative C accommodation in accordance with the law. Another attempt by the appellant to have Mrs Santobai evicted from the leased premises after the death of her husband had failed when this court ruled that the late Mrs Santobai Gangaram could not be evicted from the premises as she became a D legal tenant by virtue of surviving the legal tenancy from her late husband Santobai Gangaram, who died while still a legal tenant of the demised premises (applying the interpretation of a `tenant' as per s 24(1) of Rent Restriction Decree Cap 98 the Laws of Zanzibar).

After the death of Mrs Santobai the surviving children of Mr and Mrs Santobai, that is the E respondents, now claim legal tenancy arguing that their late father's tenancy which was `inherited' upon his death by their mother now automatically passes on to them after the death of their mother. The Rent Restriction Board had actually made its decision on that line and had on that basis F endorsed their tenancy. Aggrieved by that decision the landlord, has appealed to this court seeking the reversal of the Board's decision and asking that this court declare the respondents as not legal tenants and consequently order them to hand over to the appellant the vacant possession of the demised premises for the occupation for his now large and overgrown family. Mr A Patel, the G learned counsel for the respondents had advanced a host of

arguments supporting the decision of the Board which all boil down to one main point, that the circumstances of this case entitle the respondents to be statutory tenants and therefore renders them to become eligible to the enjoyment of all rights applicable to legal tenants under the law. H

Mr Patel thus asserts that the respondents are statutory tenants. Section 24(1) of the Rent Restriction Decree Cap 98, the Laws of Zanzibar points out the following as conditions of statutory tenancy and I quote: I

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HAMID CJ

A `S 24 (1)

A tenant who, under the provisions of this Decree, retains possession of any premises shall, so long as he retains possession, observe and be entitled to the benefit of all terms and conditions of the original contract of tenancy, so far as the same are consistent with the provisions of this Decree and shall be entitled to give B up possession of the premises only on giving such notice as would have been required under the original contract of tenancy, or if no notice would have been so required, then, notwithstanding any provision to the contrary in any law in force in Zanzibar, on giving not less than one months notice: Provided that ...'

C I will approach this section on two fronts. The first will be with regards to whether the respondents are, legally speaking, statutory tenants and the other is, should they be legally statutory tenants, whether they are not subject to eviction at the request or notice of the landlord. Section D 24(1) of the Rent Restriction Decree cited above, pre-supposes a statutory tenant to have acquired tenancy from a pre-existing legal tenancy agreement and I would venture to say that there is a pre-supposition that such existing tenancy agreement be an original agreement between the E landlord and tenant. It would not in itself be a statutory tenancy. It is my view that it is a statutory tenancy where a wife continues to be a tenant in a house whose original tenancy agreement was between her late husband and the landlord whereby upon the death of the husband the wife was entitled to continue with the tenancy, as has been in the present case.

F In such a case it cannot be assumed that there is a tenancy agreement signed between the landlord and the tenant, but a continuation of an agreement as agreed upon by the late husband and the landlord. In this case I fail to find any authority pointing to the fact that a statutory tenancy shall as of right pass over to a potential statutory tenant upon the death of an existing statutory tenant. G That being the case, I am inclined to rule that the respondents in this case who claim to be tenants in the disputed premises by virtue of having been living in the premises with their now deceased mother, the mother who herself inherited the tenancy from her late husband are not and cannot, H under these circumstances be legal tenants. And needless to say, that if they are not legal tenants they should vacate the premises and hand over the same to the appellant, the landlord.

I The second side of my argument hinges upon a supposition that the respondents are indeed statutory tenants, a point which has

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HAMID CJ

been accepted and indeed put forward by the learned advocate for the respondents himself. So A the respondents, accepting that they are statutory tenants, are in accordance with s 24(1) of the Rent Restriction Decree Chap 98, the Laws of Zanzibar bound by the terms and conditions of the original contract of tenancy, which in this case, is the contract between the late Santobai Gangaram B and the appellant landlord.

It is a fact that there was no written contract between the appellant and the late Santobai Gangaram and therefore there can be no question of a specific time for the appellant to give notice to quit to the tenant. Section 24(1) cited above stipulates clearly that if no notice is so required, then C notwithstanding any provision to the contrary in any law in force in Zanzibar, the tenants shall be entitled to vacate the premises upon being furnished with notice to vacate for not less than one month.

The section needs no further elaboration. That the landlord notified the respondents to vacate the D demised premises leaves us with no doubt. In fact that is the basis of the present controversy.

This case is more than six months old and therefore the one month's notice requirement in order for the respondents to vacate has already been fulfilled. That being the case I see no reason why E the respondents should not vacate and hand over vacant possession of the demises to the appellant.

Appeal allowed with costs.

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[zRPz]JOSEPH WARIOBA v STEPHEN WASSIRA AND ANOTHER 1997 TLR 272 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Kisanga JJA, Samatta JJA and Mroso AgJA

B CIVIL APPEAL 52 OF 1996

2 October 1997

C (An appeal from the decision of the High court of Tanzania, Mwanza, Lugakingira J)

Flynote

Elections - Election petition - Corrupt practice - Section 114 of Elections Act - Omission of corrupt practice from s 114 inadvertently done - Necessary to read the words `corrupt or' into the section in order to remove absurdity and avoid discrimination.

D Statute - Interpretation of - Discovering intention of legislation - Objects and Reasons for Bill relevant to enquiry and recourse may be had thereto.

E Statute - Interpretation of - Reading words into section - Permissible to do so in appropriate circumstances

-Headnote

The appellant noted an appeal against a finding by the High Court on an election petition that although the respondent had committed an act of corrupt practice, it was unable to certify same to the Director of Elections as s 114 of the Elections Act did not make provision for such certification F and merely made provision for illegal practices.

Held:

(i) Parliament had deliberately retained the reference to illegal practice in s 114 to empower the election court to deal with persons found guilty of that offence where the Director of G Public Prosecutions did not institute criminal proceedings. There could be no good reason why Parliament would exempt persons found guilty of corrupt practices where the Director of Public Prosecutions had not taken up the matter. The omission to re-introduce corrupt practice was accordingly through inadvertence;

H (ii) In interpreting the section to divine the intention of the Legislature it was permissible in this regard to have recourse to the Objects and Reasons of the Bill which was relevant to the enquiry.

(iii) The present was a fit case where the Court should interpret s 114 as including or extending to corrupt practice even though this meant reading words into the section. To do so in the present case would remove absurdity and avoid the discriminatory effect which I would otherwise arise from a literal construction.

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Case Information

Appeal allowed. A

Cases referred to:

1. R v Judge of the City of London Court [1892] 1 QB 273
2. Vacher and Sons Ltd v London Society of Compositors [1913] AC 107
3. Kammins Ballrooms Co Ltd v Zenith Investments (Torquay) Ltd [1970] 2 All ER 871 B
4. Nothman v Barnet London Borough [1978] 1 All ER 1243

Rweyemamu and Dr Mwaikusa for the appellants,

Marando, Malamsha and Dr Lamwai for the respondents.

Malamsha for the second respondent (Attorney-General) C

[zJDz]Judgment

Kisanga, JA

During the 1995 general election the first respondent Mr Stephen Masatu Wassira, was elected Member of Parliament for Bunda constituency, but subsequently his election was nullified by the D High Court (Lugakingira, J) upon an election petition filed by the appellant, Mr Joseph Sinde Warioba. In the course of dealing with that petition the trial judge found that the respondent had committed an act of corrupt practice, but declined to certify the same to the Director of Elections in terms of s 114 of the Elections Act. The appellant was aggrieved by such omission, hence this E appeal.

Both at the trial and in this appeal the appellant was represented by Mr J S Rweyemamu and Dr J T Mwaikusa, learned advocates, while Mr M Marando and Dr M Lamwai, learned advocates,

appeared for the first respondent; Mr Malamsha, learned Senior State Attorney, was for the second respondent, the Attorney General. The memorandum of appeal contains only one ground of F complaint, namely:

`That the learned trial judge erred in law when, having correctly found the Respondent to have committed corrupt practices, he declined to certify to the Director of Elections that the Respondent is guilty of corrupt practices.' G

The trial judge declined to certify to the Director of Elections because corrupt practice was not made the subject for certifying to the Director under s 114 of the Elections Act. In other words s 114 of the Elections Act provided for certifying to the Director of Elections the finding of illegal practice H only, not corrupt practice. Section 114(1) of the Elections Act says:

`114(1) Where the Court determines that a person if guilty of any illegal practice, it shall certify the same to the Director of Elections ...' I

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KISANGA JA

A Counsel for the respondent had contended before the High Court that in the absence of any reference to `corrupt practice' in the provision, there could be no basis for requiring that Court to certify any finding of corrupt practice to the Director of Elections. To counter that argument, counsel for the appellant submitted that the omission to require findings of corrupt practice to be certified to B the Director of Elections was simply through inadvertence. During this appeal counsel arguments again centred on this point to a very large extent, and the immediate question which falls for consideration now is whether the omission was deliberate or was through inadvertence.

C In support of the submission that the omission was through inadvertence, Dr Mwaikusa traced the legislative history of the offence of corrupt practice. This history shows that corrupt practice was made an electoral offence under the Elections Act No 1 of 1985. Thus under s 114(1) of the Act, for D instance, the High Court which had jurisdiction to hear election petitions then was required to report to the Director of Elections any findings of corrupt or illegal practice. In 1990, however, the law was amended by Act No 13 of 1990 whereby the offences of corrupt practice were removed from the Elections Act. Thus ss 94, 96, 97, 98, 100, 102(1) and 107 of the Act relating to corrupt E practices were replaced, and s 114, partly relating to corrupt practice, was also repealed but replaced by provisions which no longer made reference to corrupt practice but to illegal practice F only. So that under sub-sec (1) of s 114, for instance, the obligation to certify to the Director of Elections lay in relation to findings of illegal practice only, and not any findings of corrupt practice as had been the case before. By Act No 20 of 1990 the offences of corrupt practice were transferred to G the Prevention of Corruption Act. In other words, after the coming into operation of Act No 20 of 1990 all electoral offences of corrupt practice were dealt with not under the Elections Act, but under the Prevention of Corruption Act. The offences of illegal practice, however, were not transferred to the Prevention of Corruption Act; they continued to be dealt with under the Elections Act. Thus H under s 114(1) of the Act the findings of any illegal practice, following an election petition, was to be certified to the Director of Elections. Under the 1990 legislation the duty to so certify was cast

on the Electoral Commission which was, under that Act, vested with the jurisdiction to hear and determine I election complaints, while under the Elections (Amendment) Act No 6 of 1992 the duty to so certify was cast on the High Court petitions was restored to that court.

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KISANGA JA

It is clear from this that the purpose of the Bill is to re-introduce into the Elections Act the offences A of corrupt practice which had been removed from that Act in 1990. Counsel, therefore, contended that there can be no rational explanation why Parliament should restore corrupt practice in ss 94, 96, 97, 98, 100, 102(1) and 107 but deliberately omit to restore it in s 114. Such omission, counsel B maintained, can only be explained on the basis of an oversight or inadvertence.

In response to that, Dr Lamwai took the view that corrupt or illegal practices as re-introduced by ss 94, 96, 97, 98, 100, 102(1) and 107 of the Act envisage that the proceedings relating to the trial of C those offences will be of a criminal nature in which the charge is laid, the Director of Public Prosecutions appears and, if the charge is proved, conviction is entered. The nature of the D proceedings envisaged by s 114(1), however, is different. That provision envisages proceedings where no charge has been laid, the Director of Public Prosecutions does not appear and, if the offence is proved, the court does not convict, but merely determine that the person concerned is guilty of illegal practice. Therefore, counsel contended, the omission to restore corrupt practice in s 114(1) was deliberate in as much as the proceedings envisaged by that section are not of a E criminal nature; they are those which end up not with a conviction but with a mere determination of guilt.

With due respect to Dr Lamwai, we could not accept this argument. The determination referred to under s 114(1) that a person is `guilty' of an illegal practice, is consistent with a criminal trial F because such determination or finding is normally followed by a conviction. Therefore, if an election court is empowered under the provision to make such a determination or finding in respect of illegal practice, there is no good reason why it should not be equally empowered to make the same finding in respect of corrupt practice under that provision, which is in fact what the trial court did in the G present case.

But what is even more important is this: if, as Dr Lamwai argues, corrupt or illegal practice as restored by ss 94, 96, 97, 98, 100, 102(1) and 107 envisaged that the trial of these offences will be H a criminal nature, then the question is: why is illegal practice also retained under s 114(1) where it is envisaged that the trial of that offence under the Act will not be of a criminal nature? In other words, if Dr Lamwai is right, then one could expect consistency whereby both offences ie corrupt and illegal practices are confined within the ambit of ss 94, 96, 97, 98, 100, 102(1) and 107 and that I the offence

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KISANGA JA

A of illegal practice would be deleted from s 114. This was not done. Yet, in our view, it cannot be said that the omission to delete illegal practice from s 114 was through inadvertence. For, it is conceivable that there will be instances of alleged illegal practices in which the Director

of Public Prosecutions does not consider it fit to institute criminal proceedings. In that case the elections B court has to deal with the allegation or allegations to see whether or not they are proved. It cannot reasonably be said that where the court finds that the allegation of illegal practice is proved the court should sit back and do nothing, the court must act. Therefore, Parliament must have deliberately C retained the reference to illegal practice in s 114 in order to cater for such situations, ie to empower the court to deal with persons found guilty of illegal practice.

Likewise there will be instances of alleged corrupt practices in which the Director of Public D Prosecutions does not consider it fit to mount prosecution, in which case the elections court has to deal with the matter, as was the case in the present case. Once again if the court finds, as indeed it did in this case, that the allegation of corrupt practice is established, can the court reasonably be expected to sit back and do nothing? We think Parliament cannot have intended so, especially E considering the seriousness with which the society views the offence of corruption.

As was demonstrated earlier, Parliament deliberately retained the reference to illegal practice in s 114 to empower the election court to deal with persons found guilty of that offence where the F Director of Public Prosecutions does not institute criminal proceedings.

In our view, there can be no good reason for thinking that Parliament would exempt persons found, by an elections court, guilty of corrupt practices where the Director of Public Prosecutions has not G taken up the matter. It is for this reason that we tend to agree with Dr Mwaikusa's submission that the omission to re-introduce corrupt practice in s 114 was through inadvertence, especially as the objects and reasons for the relevant Bill make it abundantly clear that the intention was to bring back the offences of corrupt practice to the Elections Act.

H Mr Marando objected to any reference to the objects and reasons of the Bill for the purposes of discovering the intention of Parliament when enacting the 1995 legislation to re-introduce corrupt practices into the Elections Act. He contended that for the purposes of discovering that intention, the objects and reasons were irrelevant and should not be looked at at all. However, learned I counsel did not cite any authority in support of this view. For our

part, we think that the objects and reasons for the Bill are relevant and that we are entitled to look at A them in trying to discover the intention of Parliament when enacting the law in question.

Given then that the clear intention of Parliament was to restore corrupt practice into the Elections Act, there is no indication that such restoration was meant to be effected only in some parts of the B Act and not in others. We could not gather any such indication from the objects and reasons for the Bill to enact the law in question. We also had the occasion of glancing through the relevant pages of the Hansard. The debate over the Bill focussed on total condemnation of corruption and the great need to stamp it out from the electoral process. There was no indication whatsoever that corruption was to be treated or viewed with less seriousness in any of the provisions of the Act, or that the C intended restoration of the offence was to be

effected only in some parts of the Act and not in others. In other words there can be no rational explanation why Parliament should decide to restore corrupt practice in respect of ss 94, 96, 97, 98, 100, 102(1) and 107 only but deliberately omit to do D so in respect of s 114 of the Act.

We are, therefore, firmly of the view that the omission to restore corrupt practice is s 114 of the Act was through inadvertence, and the question that now follows is, what is the remedy? In order to E remedy this, Dr Mwaikusa urged us to interpret or construe s 114 as including, or extending to, corrupt practice, so that corrupt practice is placed side by side with illegal practice and both are treated equally under that provision, as indeed they are in ss 94, 96, 97, 98, 100, 102(1) and 107. To do so, learned counsel went on, would avoid absurdity in the operation of s 114 and would prevent F that provision from being discriminatory in its effect.

Both Dr Lamwai and Mr Marando as well as Mr Malamsha strongly opposed this submission and contended that to do so would amount to amending the statute by adding words to it which is the G function of the Legislature, adding that all that the court can do is to take note of the inadequacy in the law, if the court is satisfied that such inadequacy in fact exists, and draw the attention of the Legislature to it for its remedial action. H

We have considered carefully counsel submissions for both sides. We think that this is a fit case where, as submitted by Dr Mwaikusa, the court should interpret s 114 as including or extending to corrupt practice. The view that nothing should be added to a statutory provision was widely accepted by the courts in England during the nineteenth and first half of the twentieth century. Thus I for

A instance, in R v Judge of the City of London Court (1) at 290 the Court of Appeal (per Lord Esher, MR) said, inter alia, that:

> `... If the words of an Act are clear, you must follow them, even though they lead to a manifest absurdity. The Court B has nothing to do with the question whether the legislature has committed an absurdity.'

Re-affirming that view, the House of Lords (per Lord Atkinson) in the case of Vacher and Sons Ltd v London Society of Compositors (2) at 121 said:

C `... But, as Lord Halsbury laid down in Cooke v Charles A Vogeler Co, a Court of law has nothing to do with the reasonableness or unreasonableness of a provision of a statute, except so far as it may help it in interpreting what the Legislature has said. If the language of a statute be plain, admitting of only one meaning, the Legislature must D be taken to have meant and intended what if has plainly expressed, and whatever it has in clear terms enacted must be enforced though it should lead to absurd or mischievous results.'

However, over the years this position has changed, and the view today is that in interpreting a E statutory provision the court may, in a fit case, read words into the provision. Thus, for instance, in Kammins Ballrooms Co Ltd v Zenith Investments (Torquay) Ltd (3) at 893 the House of Lords (as per Lord Diplock) adopted what was described as the `purposive' approach, instead of the literal F approach, and imputed to Parliament `an intention not to impose a prohibition

inconsistent with the objects which the statute was designed to achieve, though the draftsman [had] omitted to incorporate in express words any reference to that intention'.
That approach was re-echoed and elaborated upon by the Court of Appeal in Nothman v Barnet G London Borough (4) at 1246 where Lord Denning, MR said:

`The literal method (of construction) is now completely out of date. It has been replaced by ... the "purposive" approach.... In all cases now in the interpretation of statute we adopt such a construction as will promote the H general legislative purpose underlying the provision. It is no longer necessary for the judges to wring their hands and say: There is nothing we can do about it. Whenever the strict interpretation of a statute gives rise to an absurd and unjust situation, the judges can and should use their good sense to remedy it -- by reading words in, if I necessary -- so as to do what Parliament would have done had they had the situation in mind.'

1997 TLR p279
KISANGA JA
Consistent with such holding, the Court declined to adopt the literal approach, and instead read A words into the provision of the statute which it was construing. We find these last two cases to be very persuasive.
As stated earlier, the objects and reasons for the Bill to enact the Elections Act No 8 of 1995 make it manifestly clear that the intention of the proposed legislation was to re-introduce corrupt practices B into the Elections Act. But that intention was implemented only in part in that corrupt practice was not restored in s 114. Yet there is nothing in the objects and reasons for the Bill, or indeed anywhere else insofar as we could gather, to show or suggest that that intention was to be carried out only C with respect to some sections of the Act and not others. So that to the extent that corrupt practice was not restored in s 114 that section was, in one real sense, incomplete. That is to say, the section does not reflect or fulfil the aim or intention of the Legislature which was to bring back the Elections Act to the status which it was in prior to the 1990 amendment to it. Had the attention of D Parliament been drawn to that point at the time of enacting that law we feel certain that Parliament would readily have taken steps to make the provision complete. Therefore, on the strength of the two cases of Ballrooms and Nothman above which we have found to be very persuasive, the Court E would be justified to interpret s 114 as including or extending to corrupt practice, in order to promote or give effect to the general legislative purpose of restoring corrupt practices to the Elections Act. F
Such construction is even more justified for the purpose of removing the absurdity which arises from the literal construction of s 114. As rightly contended by Dr Mwaikusa, s 114 when construed literally, leads to an absurdity in that it empowers the court to certify to the Director of Elections G findings of illegal practice but gives no such power in relation to corrupt practice. Corrupt practice is not in any way less serious than illegal practice; indeed the learned trial judge was of the view that corrupt practice was the more serious of the two. It would, therefore, be absurd, as Dr Mwaikusa submitted, for Parliament to empower the elections court to certify for sanctions persons found H guilty of illegal practice but to let those found guilty of corrupt practice go scot free, especially considering the fierce war which the society has been waging against corruption in recent years, and continue to do so in the present day. Had

Parliament been appraised of such blatant absurdity at the time of enacting the Act, it would have taken steps to remove it; we feel I
1997 TLR p280
KISANGA JA
A justified to construe s 114 in such a way as to achieve just that which Parliament had set out to do, and no more.
Again such construction is justified in order to remove the discriminatory effect of s 114 which would arise from the literal construction of that provision. Section 114, literally construed, would be B discriminatory in its effect because, as already noted, it empowers the court to certify for sanctions persons found guilty of illegal practice while conferring no such power on the court in respect of those found guilty of corrupt practice which is a similar or even more serious offence. This would contravene Article 13(2) of the Constitution of the United Republic which in effect C prohibits the enactment of any law which is either directly discriminatory or is discriminatory in its effect.
Dr Lamwai's reply to this was twofold. First, if s 114 is discriminatory in its effect, the section is D nonetheless saved under article 30(2) of the Constitution of the United Republic which permits the making of laws that derogate from the guaranteed rights on the grounds of national interest. With due respect to the learned counsel, however, we cannot see how discriminating between persons found guilty of illegal practice and those found guilty of corrupt practice can be said to promote, E preserve or protect the interests of the nation.
Alternatively, Dr Lamwai submitted that if s 114 is discriminatory in its effect then the remedy is not to read the words corrupt practice into it because that would amount to amending the section which the court has no power to do. In his view the remedy is to initiate in the High Court proceedings to F have that section struck down for being inconsistent with the Constitution. Again, with due respect to Dr Lamwai, we could not agree. The issue of construing s 114 was properly before the Court, and the Court is satisfied that literal construction of that section would render it discriminatory in its G effect and hence ultra vires the country's Constitution. In those circumstances we are of the view that the Court is justified, and indeed has a duty, to construe the provision in a manner that brings it into conformity with the Constitution, and it would not be necessary or even desirable to wait for Parliament to amend the section. The question of striking down s 114, as Dr Lamwai submits, does H not arise because that question was not before the Court; what was before the Court was whether or not s 114 should be construed literally.
We have, therefore, decided to adopt the purposive approach in interpreting s 114 in order to I promote the legislative object or pur-
1997 TLR p281
KISANGA JA
pose of restoring corrupt practices to the Election Act, and to remove the absurdity and the A discriminatory effect which would arise from the literal construction of that section. Underlying the need to remove the discriminatory effect is the need, as demonstrated above, to bring that section into conformity with the country's Constitution. The construction which we have

decided to adopt B entails reading into the section the words `corrupt or' immediately before the word `illegal' whenever it occurs in that section. But in so doing we desire to make it clear that we are not amending the section. As amply demonstrated earlier, these words are not being invented by the Court, and they C are not being used in that section for the first time. They were originally used by Parliament in the 1985 Elections Act. Although they were deleted from the Act by the 1990 amendment, Parliament sought to restore them by the 1995 amendment but through inadvertence the words were not restored in s 114. So that all that we are doing is to read into the section the words which D Parliament itself had originally used in the 1985 Elections Act, deleted them from the Act in 1990 and subsequently sought to restore in 1995 but, through inadvertence, omitted to restore them in s 114. Those words are not in any way attributable to the Court; they are the words of Parliament itself; they are the very choice of Parliament and therefore, we cannot properly be said to be E amending the law by merely reading into s 114 the words which are Parliament's own choice. But speaking generally, even if Parliament had not specifically used those words in the 1985 electoral legislation, the Court would still be justified to use those words, or words to that effect, in order to F achieve exactly that which Parliament had set out to do, and which it would have done, had the situation been brought to its attention at the time of passing the Elections (Amendment) Act 1995.

It was also contended that reading the words `corrupt or' into the section would lead to the court G finding the respondent guilty of an offence the consequences of which were not known to him at the time of its commission. That would offend the rule against retroactivity. However, we can find no merit in this. If under s 114 the court certifies to the Director of Elections that a person is guilty of H corrupt practice, the consequences that follow would include deleting from the register of voters the name of the person so certified, and the disqualification of that person for a period of five years from registering as a voter or from voting. But those are precisely the same consequences that follow under s 96 of the Act when a person is convicted of corrupt practice. Therefore it is not correct to I

A say that the consequences of committing the offence of corrupt practice were not known at the time the respondent committed it.

And lastly it was submitted for the respondent that s 114 was in the nature of a penal provision insofar as it required a person found guilty of illegal practice to be certified, for sanctions, to the B Director of Elections. As such, therefore, it was contended, the provision ought to be construed strictly so as not to include, or extend to, corrupt practice. Our view of the matter is that where, as in this case, strict construction gives rise to absurdity or discriminatory effect of the provision, such construction or approach should not be adopted and that is what we have done.

C Thus, for the reasons set out above, we feel justified to read the word `corrupt or' into s 114 and it is not necessary or desirable to wait for Parliament to amend the law. We, therefore, uphold Dr Mwaikusa's submission and find that the learned trial judge, having found that the respondent was guilty of corrupt practice, wrongly declined to certify the same to the Director

of Elections. The D appeal is allowed with a direction to the trial court to certify to the Director of Elections in terms of s 114(1) of the Elections Act. The appellant shall have his costs.
1997 TLR p282
F
[zRPz]NATIONAL BANK OF COMMERCE v RISASE NDAMA 1997 TLR 282 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Bubeshi J

G MISCELLANEOUS CIVIL CAUSE 38 OF 1996
3 October 1997
Flynote
H Civil Practice and Procedure - Appeal - Contention that trial court lacked jurisdiction - Such contention can not be raised for first time at the appellate stage - Section 9 Civil Procedure Code 1966.
-Headnote
The appellant filed the present appeal against a judgment of the regional magistrate who had held that the respondent had been unlawfully dismissed. The appellant contended that as the respondent I had been a
1997 TLR p283
member of appellant's management cadre the matter should have been heard in the Industrial A Court.
Held:
Objections to the jurisdiction of a court had to be taken at first instance and in the present case, as there had been no objection recorded to the jurisdiction of the trial court, the matter could not be determined in the appellate court. Section 19 of the Civil Procedure Code 1966 was very clear on B this aspect.
Case Information
Appeal dismissed.
Lyimo for the appellant. C
Mapunda for the respondent.
[zJDz]Judgment
Bubeshi J:
The appellant National Bank of Commerce has, through the services of Mr Lyimo learned Counsel filed this appeal to challenge the judgment delivered by Chillonji PRM on 10 January 1996. The trial D court after hearing the matter had declared that the summary dismissal imposed by the appellant or the respondent was wrongful and of no effect, and that the respondent was entitled to arrears of salary and other emoluments from September 1991 to 15 June 1992 and full wages from 15 June 1992 until date of re-engagement. The appellant was also condemned to pay costs. The appellants E were aggrieved hence this appeal.

The challenge the decision, the appellant filed four grounds:

1. That the Honourable Resident Magistrate erred in law and facts in not satisfying himself with the jurisdiction of the Court before hearing the suit. F

2. That the Honourable Magistrate erred in law and in facts in finding that the respondent was not negligent in causing the appellant to suffer loss in the sum of Tsh 3,104,817/45. G

3. That the honourable trial magistrate erred in law and facts in holding that the respondent was wrongfully dismissed.

4. That the honourable trial court erred in law and facts in not weighing the evidence of both parties and decide the suit in the balance of probabilities. H

Parties were ordered to file written submissions and they did so timely. Dr Mapunda appeared for the respondent.

In their first ground, the appellants submitted that the trial court lacked jurisdiction to hear the I matter. They contended that the respondent having being found to belong to the management cadre

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BUBESHI J

A of the appellant, could only challenge his termination at the Industrial Court, in terms of s 4 of Act 41 of 1967, as amended. The appellants contend that the respondent was wrong to file his suit in the ordinary Courts. The appellants are also saying that it is upon the trial court to satisfy itself that it B is seized with jurisdiction to try a matter. In the alternative the appellant submitted that the trial court had no jurisdiction to hear the matter as no dispute was raised by the respondent concerning the breach of conditions of contracts.

C As regards grounds two, three and four, the appellants argued them together. In their submission the appellants contend that the respondent acted negligently when he stopped PW3 Anthony Mhoja from taking the disputed cheque to the drawer for verification and instead directed PW3 to the office of the branch accountant who was not conversant with fraud and investigation. The appellants insist D that the respondent was negligent in that he stopped his subordinate PW3 from discharging his duties, that he misdirected PW3 to take the disputed cheque to a person not responsible with investigation that he never bothered to make a follow up in the matter until the money was finally paid out to a wrong person, thus occasioning loss to the appellants. They submit therefore that the E respondent's dismissal was proper.

The respondent on his part has responded in the following manner.

F On the issue of jurisdiction, the respondent submitted that the appellants contention that the trial court lacked jurisdiction cannot be entertained at this appellate stage. That this matter was never raised during trial and that in terms of s 79 of the Civil Procedure Code 1966 objections as to jurisdiction must be taken in the trial court at the earliest opportunity before settlement of issues. I am minded to agree with the respondent on this issue. Section 19 of the Civil Procedure Code 1966 G is very clear, it reads;

`No objection as to the place of suing shall be allowed by any appellate or revisional Court unless such objection was taken in the country first instance at the earliest possible

opportunity and in all cases where issues are settled H at or before such settlement, and unless there has been a consequent failure a justice.'

This suit was filed on 13 July 1992. Perusal of the Court record does not show that any objection was raised by the appellant as to the trial court's jurisdiction. Judgment was delivered on 10 I January 1996. I think it is highly improper for the appellant to raise the issue

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BUBESHI J

of jurisdiction at this stage. The appellant's contention flies in the face of the provision of s 19 sited A above and at best it is an after thought. The appellant has submitted that it is for the trial court to satisfy itself that it has jurisdiction to try a matter. With respect I hold contrary views. It is for the party raising the issue to address the Court and the latter to rule whether or not it has jurisdiction. B

On the premises I am satisfied that this ground of appeal lacks merit and I dismiss it without further ado.

On grounds two, three and four the respondent has submitted that it was the Branch Accountant who verified the cheque and credit slip. That it was this Branch Accountant who authorised payment after being satisfied that the cheque was in order. Respondent denied being negligent or C responsible for the loss.

On this issue I have had time to revisit the evidence or record. On the fateful day, the plaintiff/respondent happened to be visiting the city branch National Bank of Commerce where he met the witness PW3 Anthony Muhoja arguing with a customer over a cheque. PW3 was D suspicious and had wanted the customer to go and verify it with the drawer. The respondent then referred the two to the Branch Accountant one Yassin who, it would appear, ultimately cleared the cheque and authorised that it be paid out. Now the issue here is, who between the two occasioned loss to the appellant. Is it the respondent or the Branch Accountant? Mark you the appellant never E called this Yassin to testify. Can we say that what the respondent did was not reasonable in the circumstances. I think not. If there was any investigation to be done in that direction that would definitely come from Yassin but against this Yassin was not called. We do not know what happened but what is clear is that the cheque was cleared by Yassin and payment authorised. In fact even F DW1 told the Court that he did not know why the respondent was dismissed and that he was not responsible for the loss of the money. The appellant in their submission are imputing ill motive on the part of the respondent. Having gone through the evidence tendered by all witnesses including G DW1, this Court does not share that conclusion. There is no sufficient evidence on record to hold the respondent negligent, in what he did by referring both DW3 Anthony Muhoja and the customer to the Branch Accountant. H

In the final event this Court upholds the decision of the trial court and dismiss the appeal with costs. I

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[zRPz]MAGU DISTRICT COUNCIL AND ANOTHER v MHANDE NKWABI 1997 TLR 286 (HC)

Court High Court of Tanzania - Mwanza
Judge Mrema J

B CIVIL APPLICATION 3 OF 1997
16 October 1997
Flynote
C Civil Practice and Procedure - Joinder and misjoinder of parties - Person not a party in original suit seeking to be joined as appellant in appeal proceedings - Whether proper.
-Headnote
In an application by the two applicants for leave to lodge an appeal against a decision of the D Mwanza District Council out of time, the High Court observed that the second applicant had not been a party to the case at the trial in the district court from which the intended appeal was sought but his name had been brought in for the first time in the formal decree of the district court. The decree had been drafted by the advocate for the applicants who had also drawn the present application and joined the second applicant.
E Held:
(i) No provision of the law allowed the joining of a party as appellant in appeal proceedings who had not been a party to the original proceedings whose judgment and decree were the subject of the appeal;
F (ii) As the second applicant was not a party to the original suit from which the intended appeal originated there was no judgment or decree or anything against him to legitimise his joinder as one of the intended appellants;
(iii) The decree accompanying the chamber application and proposed petition of appeal were improper, if not fake, documents as they purported to join a party who had not been a party G in the original suit;
(iv) The application was incompetent for misjoinder of parties.
Case Information
Application struck out.
Matata for the applicants.
H Kweka for the respondent.
[zJDz]Judgment
Mrema J:
Mr Matata, learned advocate for the two applicants, viz, Magu District Council and L M Ndaki, herein this Ruling referred to as the first and second applicant respectively, has filed the present I application on behalf of the applicants under s 14 of the Law of

Limitation Act (Act No 10 of 1997) basically for one main reason: and that is for leave to file appeal A out of time. The application is supported by an affidavit deponed to by the advocate for the applicants, Mr C A Matata, Messrs Matata & Company Advocates.

The respondent, one Mhande Nkwabi, was the plaintiff in the Original Civil Case No 11 of 1995, in the Resident Magistrate's Court at Mwanza. In this application it is apparent that he filed a counter affidavit challenging the applicants' grounds deponed to Mr Matata's affidavit. However, at the B hearing of this application Mr Kweka, learned Counsel from the Tanzania Legal Corporation appeared and argued the application on behalf of the respondent.

The facts, as revealed in Mr Matata's affidavit, are as follows: C

2. That the applicant is aggrieved by the trial court's decision -- judgment entered on the 20 June 1996.

3. That on 21 June 1996 the applicant gave notice of intention to appeal against the said D decision and applied for a copy of the said judgment and decree -- notice appended, and marked as annexure `A'.

4. ... On 28 November 1996 the applicants drew up a memorandum of appeal against the E said judgment but could not file the same for lack of requisite copy of a decree as the Law requires.

5. That on 4 December 1996 because of the delay by the trial court to supply a copy of the decree, he drafted (ie Mr Matata) and submitted a draft decree for endorsement of the F Court which endorsement was made on the 12 December 1996 -- application and decree annexed collectively as annexures `B'.

6. ... On 22 January 1997 the applicants were supplied with a copy of the decree whereupon the applicants filed the memorandum of appeal with a copy of the said decree. G

7. That the delay in filing the appeal was beyond the control of the appellant.

8. That by virtue of the provision of s 19(2) of the Law of Limitation Act 10 of 1972 the time requisite for obtaining a copy of the decree ought to be excluded in computing the period of H Limitation.

Upon these grounds, it is Mr Matata's prayer that this Court makes an order extending the period allowing the applicants file their intended appeal out of time.

The respondent Mhande Nkwabi countered these grounds I

A through his counter affidavit contending, basically, that the application of the applicant is baseless because there is not a single ground in the affidavit deponed to on their behalf by their advocate, Mr Matata, Learned Counsel, which holds any merit as to the reason for the delay.

B I heard the arguments from both the Learned Counsel, Mr Matata for the applicants and Mr Kweka of the Tanzania Legal Corporation for the respondent. But, with respect, and without wasting anybody's time, I wish to state straight away that this application is incompetent before this Court because of misjoinder of parties in the application. It is quite apparent in the RM Civil Case No 11 of C 1995 the parties in that proceeding were Mhande Nkwabi, the plaintiff, and Magu District Council, the defendant. The second applicant in this matter, namely, L M Ndaki,

was not a party to that proceeding, he was merely a witness for defence (DW). I know of no provision in our Laws that makes it possible the joining of a party in appeal proceeding who was not a party to the original D proceeding whose judgment and decree are subject of appeal.

I have noted that Mr Matata, the Learned Counsel for the applicants, was also the legal representative of the Magu District Council, the first applicant defendant. If Mr Matata had wished to E make Mr L M Ndaki a party to that proceeding whose judgment and decree he is now seeking to appeal from the district court to this Court he should have done so at that stage. The judgment and decree being sought to appeal to this Court was given against the lone defendant, Magu District Council, and not also against L M Ndaki who was only a witness in that original suit. As Mr L M F Ndaki was not a party to the RM Civil Case No 11 of 1995 there is nothing against him as a party legitimizing him to come to this Court as one of the appellants when there is no decree and or judgment against him in the originating Court.

G In the course of dealing with this exercise I have also been reviewing what Mr Matata has averred at para 5 of his affidavit and cautiously asking myself as to the appropriateness of Mr Matata's action. The said averment reads:

H `That on the 4/12/96 because of the delay by the trial court to supply a copy of the decree, I drafted and submitted a draft decree for endorsement of the Court which endorsement was made on the 12/12/96. A copy of the application and decree are appended hereto....'

I With respect, I am particularly concerned with the copy of the

decree, which the learned advocate attached to his affidavit as annexure `B'. As to who drafted it A (the decree) and presented the same to Court for signature, it is now common ground that the author was advocate Matata, as per his own admission. This is where the whole mess sprang up. Mr Matata, being an advocate of long experience ought not, with great respect, to have acted as a lay man, if not contrary to the doctrine of uberrimae fidei. He (Mr Matata) having acted for the B defendant Magu District Council in the District Court, there is no doubt therefore that he knew who were the parties in the original suit, hence any appeal lay against any one of them. But then it appears absurd, if not unbecoming of professional ethics on the part of the same learned advocate C to go ahead to draw a decree on which he callously dragged in one L M Ndaki, the purported present second applicant, as one of the defendant/judgment debtors. In my mind, this clearly shows that Mr Matata drew up the decree enjoining L M Ndaki deliberately for his own interest to same. I D say Mr Matata's conduct in the matter was deliberate because he was very much aware that L M Ndaki was only just a witness in the original proceeding and not a party thereto. How hail, in my considered view, a witness could just out of blue sky be made a judgment debtor in a decree whose subject matter the purported defendant/judgment debtor was never a party! E

Other documents filed by Mr Matata in support of the present application tend to show openly that the learned advocate was not acting with clean hands. For example, the Notice of Appeal issued by him on 21 June 1996 included L M Ndaki as the second defendant, a fact which Mr Matata knew or F ought to have known to be false. It is on the foregoing circumstances I am

inclined to the view that the said Learned Counsel has not been acting in good faith and according to his professional ethics.
In the upshot I am satisfied to say that the decree accompanying the Chamber application, and also G the proposed petition of appeal to this Court are nothing but improper if not fake documents as they purport to enjoin a party who was not a defendant in the original suit. And this, in effect, renders the entire application incompetent before this Court and, therefore, invalid. In the result I strike out the application with costs to the respondent. H
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[zRPz]INSPECTOR SADIKI AND OTHERS v GERALD NKYA 1997 TLR 290 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Ramadhani JA

B CIVIL APPLICATION 8 OF 1996
27 October 1997
Flynote
Civil Practice and Procedure - Appeals - Application for extension of time to serve respondent with notice of C appeal - Application made after 40 days refused.
-Headnote
The applicants were the respondents in an action for malicious prosecution in the High Court in which judgment was given against them. The applicants filed a notice of appeal within 6 days of the D judgment having been granted but the respondent was neither served with a copy of the notice of appeal nor the copy of the letter requesting copies of the proceedings. It appeared that the applicants reacted only some 40 days after they became aware of the omission.
Held:
E (i) The cause of the delay in the present case was the error of the applicants. These circumstances did not constitute `sufficient reason' for the purposes of Rule 8.
Case Information
Application dismissed.
F Cases referred to:
1. Transport Equipment Ltd v D P Valambhia [1993] TLR 91 (CA)
2. Daphne Parry v Murray Alexander Carson [1963] EA 546
G Songoro for the applicants.
[zJDz]Judgment
Ramadhani JA:
The respondent, Gerald Nkya, successfully sued the three applicants for malicious prosecution in the High Court of Tanzania at Arusha. The judgment was delivered on 26 July 1996 and on 1 August 1996 the applicants filed a notice of appeal and wrote a letter requesting copies of the proceedings. H The respondent was neither served with a copy of the notice of appeal nor with

a copy of the said letter. Hence, this application to extend time within which to serve the respondent with both of those copies.

I The applicants were represented by Mr Songoro, Learned Senior

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RAMADHANI JA

State Attorney. He reiterated the contents of the affidavits of Mr Mlambo, Learned State Attorney A Arusha and Mariam Issa Pangani, the personal secretary to the Principal State Attorney, Arusha. It has been explained by the applicants that the notice of appeal and the letter requesting record of proceedings indicated that copies to be served on the respondent. However, because the law B secretary had gone on maternity leave, Mariam Pangani filled the vacancy, but as she was new to the job, she sent the originals and all the copies to the High Court. No copy was sent to the respondent, Mariam Pangani herself, said so in her affidavit. The Attorney-General's Chambers, Arusha became aware of this omission on 3 October 1996 when the office received a letter from C the respondent claiming the execution of the decree.

The respondent, on the other hand, in his counter-affidavit, said that on 19 September 1996, that is forty-nine days after the notice of appeal was filed, he presented to the Attorney-General's Chambers, Arusha, copies of the proceedings, judgment and decree of the case to alert them that D he was taking steps to execute the award. On 30 September, he sent to the Treasury his claim for Shs 29,426,250/= by registered mail with a copy to the applicants. He went on to say that there was some further correspondence with the Treasury and that on 6 November 1996 he sent the E details required by the Treasury copied to the Attorney-General's Chambers, Dar es Salaam and Arusha. On 18 November the respondent went to the Attorney-General's Chambers, Arusha for some other business when a copy of notice of motion for this application was presented to him. He found out that the application had been filed on 13 November. F

Mr Songoro maintained that it was on 3 October 1996 and not earlier, that the Attorney-General's Chambers, Arusha became aware that the respondent had not been served. What the learned Senior State Attorney was doing was refuting the suggestion of the respondent that the G Attorney-General's Chambers, Arusha ought to have been alerted as far back as 19 September when the respondent delivered to them copies of the proceedings, judgment and decree. There are two matters here: First, Mr Songoro, as a very senior legal officer, ought to have known better that H the proper way to contradict the contents of the counter-affidavit of the respondent was not by making statements from the bar but was by filing a reply to the counter-affidavit. That the Attorney-General's Chambers has not done. Second, the affidavit of Mr Mlambo filed in support of the application, states in para 13 that upon receipt of the copy of the letter of the respondent claiming the decretal amount on 3 October I

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RAMADHANI JA

A 1996, they realised that the respondent had not received a copy of the notice of appeal. But it is curious that the receipt of the copy of that letter signalled to the applicants only one thing; that was that the respondent had not received his copy of the notice of appeal. Someone in the Chambers should have remembered that filing a notice of appeal does not automatically stay

execution. So, the respondent could have received his copies but nevertheless, he could have decided to go B ahead with execution. The applicants should have been prompted to another reaction; to file an application for a stay of execution.

C But what is even more baffling, the reaction of the Attorney-General's Chambers, Arusha came after the expiry of forty days from 3 October, when they realised the omission, to 13 November, when they filed this application. Mr Songoro told me that the Chambers, Arusha was trying to find out what had happened. However, the learned Senior State Attorney failed to say whether it was D necessary to use forty days to do just that.

In Transport Equipment Ltd v D P Valambhia (1), this Court refused to extend time within which to serve the respondent with a copy of the notice of appeal. Admittedly, the application in that E reference was made six months after the omission became known. Here the application has been made after one month and ten days. But in that case the applicant was very quick to serve a copy of the notice of appeal to the respondent the day following the realisation of the omission. So, when F he filed that application he had already made an attempt to serve the respondent. Despite that we were not persuaded to extend time. In that reference, just as in this application, the reason advanced for seeking the enlargement of time was the error of a law clerk in the chambers of the G learned advocate for the applicant. We found that not to constitute `sufficient reason' under Rule 8.

Just for purposes of completeness, in Daphne Parry v Murray Alexander Carson (2), the applicant was late for only five days when he applied for extension of time, but the Court of Appeal for East H Africa refused to do so and despite the fact that they thought that the appeal had merit.

I cannot distinguish this application from the reference in Transport Equipment Ltd. There is no sufficient reason advanced to persuade me to exercise the powers under Rule 8. I dismiss the I application with costs. It is so ordered.

1997 TLR p293

A

[zRPz]NATIONAL BANK OF COMMERCE v STAR TRANSPORT CO LTD 1997 TLR 293 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Kisanga JA

CIVIL APPLICATION 66 OF 1997 B

6 November 1997

Flynote

Civil Practice and Procedure - Appeals - Application for extension of time to seek leave to appeal - Concurrent jurisdiction of High Court and Court of Appeal - Where application first made to and refused by High Court. C

-Headnote

The applicant applied for an extension of the time within which to appeal to the Court of Appeal and for leave to appeal to the Court. The proceedings arose from the granting of an ex-parte judgment D against the applicant and the subsequent dismissal of the applicants' application for extension of time to file an application to set aside the ex-parte judgment. The dismissal was based on the fact that the delay had been caused by applicant's gross negligence. A subsequent application for stay E of execution was struck out because no appeal had been filed and an application to the High Court, for extension of time to seek leave to appeal to the Court of Appeal and for leave to appeal against the original ruling was dismissed, the High Court refusing an extension of time to file application to set aside the ex-parte judgment.

Held:

(i) The Court of Appeal and the High Court had concurrent jurisdiction in the present matter. F The applicant had rightly made application to the High Court before coming to the Court of Appeal as under Rule 44, where the Courts had concurrent jurisdiction, first application should be made to the High Court;

(ii) In terms of Rule 43(b) however, where the application had first been made to and refused G by the High Court, a further application had to be made within 14 days of such refusal. The present application had been made long after the period of 14 days and no leave had been obtained or sought for filing the notice out of time. The application was accordingly time-barred.

Case Information

Application dismissed. H

Maira for the applicant.

Marando for the respondent.

[zJDz]Judgment

Kisanga JA: I

This is an application for the extension of time to seek leave to

1997 TLR p294

KISANGA JA

A appeal to this Court and for leave to appeal to this Court. The applicant bank is represented by Mr Maira, learned advocate, while the respondent Company is represented by Mr M Marando, learned advocate.

The case has had a chequered history in the Courts where the handling of it by counsel for the B applicant bank leaves a lot to be desired, to say the least. For the purpose of this application the following salient features may be set out by way of the background to the case. On 27 June 1995 an ex-parte judgment was entered by the High Court in favour of the respondent following a default of C appearance by counsel for the applicant. On 7 November 1995 the High Court dismissed the applicant's application for extension of time to file an application to set aside its ex-parte judgment because the delay in filing such application had been due to gross negligence on the part of counsel which, however, could not constitute ground for granting the extension sought. On 11 March 1996 a D single judge of this Court struck out an incompetent application by the applicant's counsel for a stay of execution of the ex-parte decree because no notice of

appeal had been filed in relation to that decree or judgment. And on 20 August 1997 the High Court dismissed the applicant's application for extension of time to seek leave to appeal to this Court, and for leave to appeal to this E Court against the High Court Ruling of 7 November 1995, refusing extension of time to file application to set aside the ex-parte judgment, on the ground that no reasons or grounds were advanced in support of that application. There were, in addition, other applications too, which, F however, do not have a direct bearing on the present application. Following the refusal of the last mentioned application therefore, the applicant has now come to this Court by way of a further application under Rules 8 and 43(b) of the Court of Appeal Rules.

G Admittedly, this is a matter where both this Court and the High Court have concurrent jurisdiction. Under s 11(1) of the Appellate Jurisdiction Act the High Court has power to extend the time for making an application for leave to appeal to this Court, and this Court has such power under Rule 8 of the Court of Appeal Rules. The applicant rightly made this application to the High Court before H coming to this Court, because under Rule 44 where the High Court and this Court have concurrent jurisdiction, the application shall, in the first instance, be made to the High Court. The further application to this Court, however, is subject to the time limitation prescribed by para (b) of Rule 43 which says:

I `(b)Where an appeal lies with the leave of the Court, application for

leave shall be made in the manner prescribed in rules 46 and 47 within fourteen days of the decision against A which it is desired to appeal or, where application for leave to appeal has been made to the High Court and refused, within fourteen days of that refusal.'

This means that where, as in the present case, the application for leave was first made to and B refused by the High Court, then a further application to this Court shall be made within fourteen days of such refusal by the High Court.

As stated earlier, the refusal by the High Court is dated 20 August 1997 and, additionally, it was certified by the District Registrar on 2 September 1997. However, the applicant's notice of motion C was lodged in Court on 8 October 1997. This is long after the expiration of fourteen days of the refusal by the High Court to grant leave, and no leave was obtained or sought for filing this motion out of the prescribed time.

The application is, therefore, time barred and is accordingly dismissed with costs. D

1997 TLR p295

F

[zRPz]BIKUBWA ISSA ALI v SULTAN MOHAMMED ZAHRAN 1997 TLR 295 (HC)

Court High Court of Zanzibar - Zanzibar
Judge Kannonyele J

CIVIL APPEAL CASE 9 OF 1997 G
7 November 1997

Flynote

Civil Practice and Procedure - Limitation of actions - Claim that suit is time-barred based on date of a transfer deed disowned by its alleged maker - Need to prove the transfer deed before dealing with limitation. H

Civil Practice and Procedure - Preliminary objection - Preliminary objection based on an allegation itself requiring to be proved with evidence - Whether preliminary objection can be resolved before proof of the allegation.

Civil Practice and Procedure - Jurisdiction of the Courts - Ouster of I

1997 TLR p296

A jurisdiction - Statutory conferment of jurisdiction on a tribunal - Whether jurisdiction of the ordinary courts is thereby ousted - Section 13 of the Land Tribunal Act 1994, No. 7 of 1994 (Zanzibar).

-Headnote

B The respondent filed a suit in the Regional Court for a declaratory judgment of ownership of a house. The plaint stated that the house had been entrusted to the appellant in 1982 and that when later the respondent wanted to take back possession thereof the appellant resisted, claiming that the house had actually been transferred to her by a deed executed by the respondent himself in C 1982. The respondent immediately disowned the transfer deed. The appellant raised preliminary objections: (i) that the suit disclosed no cause of action; (ii) that the action was time-barred; and (iii) that the Court had no jurisdiction. The preliminary objections were overruled and the appellant appealed to the High Court of Zanzibar.

D Held:

(i) In determining whether the suit was time-barred or not, time could not be computed from the time when the deed of transfer was purportedly made because the alleged maker is the respondent; that deed was itself an issue which needed to be proved one way or the other and it could not be relied upon to dispose of the suit on a preliminary objection based E on the law of limitation;

(ii) The conferring of jurisdiction upon the Land Tribunal to adjudicate upon conflicting claims to land did not divest jurisdiction from the ordinary courts in respect of those matters; the law only conferred jurisdiction in such matters to the Land Tribunal without undoing that F which hitherto had been enjoyed by the ordinary courts to handle similar disputes;

(iii) Where jurisdiction was conferred concurrently on courts and on tribunals, proceedings should normally and preferably be commenced in the one placed lower in the hierarchy but that was not to say that the other was thereby deprived on jurisdiction in the matter.

Case Information

G Appeal dismissed.

Mnkonje for the appellant.

Nassor for the respondent.

[zJDz]Judgment

H Kannonyele J:

The plaintiff, Sultan Mohamed Zahran filed a suit Civil Case 48 of 1996 of the Regional Court at Vuga, Zanzibar, seeking a declaratory judgment as to ownership of property (a house) at Michenzani No 6/2 and prohibitory orders on the said property against the defendant, one Bimkubwa I Issa Ali. According to the plaint, the plaintiff had, in 1982, given power of attorney to the defendant to

1997 TLR p297

KANNONYELE J

deal with his property situate in Zanzibar in any manner as he would himself, including power to sell A and or dispose of the property in any other (lawful) manner and also to represent him in judicial proceedings or others litigations when and if the need arose. The property thus entrusted to the defendant including the house at Michenzani in the municipality of Zanzibar. Subsequently (the B plaint does not disclose when exactly), the plaintiff demanded for possession of the property at Michenzani which, however, the defendant was not willing to part with easily. Eventually the defendant produced a deed of gift purportedly executed by the plaintiff way back in 1982 conveying the property at Michenzani (supra) to her, the defendant that is. The plaintiff disowns the instrument C purportedly conveying the property to the defendant and claims it is a forgery and fraudulent act by the defendant intended in law to deprive him of the said property. Hence the suit filed in court in June, 1996.

The defendant, advocated by Mr Mnkonje, learned advocate, resisted the suit alleging first, that D there was no cause of action disclosed by the plaintiff; second, that the suit was time-barred and, thirdly, that the court had no jurisdiction to entertain the matter taking into account the provisions of the Land Tribunal Act, 7 of 1994. These objections were overruled by the trial Resident Magistrate E who therefore ordered the suit to continue to its logical conclusion. The defendant is appealing against that order.

On appeal, however, only two grounds were raised and argued. It is on the law of limitation and F jurisdiction of the trial court. It was argued before me that the learned Regional Magistrate erred in law in not holding that the suit was not time-barred. It was argued that it was not open to the appellant to redeem the property thirteen years after his right to do so first arose in 1982 when the property was wrongfully taken from him as alleged. Mr Mnkonje cited the schedule to the Law of G Limitation Act which gives the right to recover immovable property the period of twelve years from the date of the alleged wrongful seizure of the property. It is contended that from the wording of paragraph 6 of the amended plaint, the plaintiff had knowledge of the wrongful seizure from 1982 H when, therefore, time started to run against him.

Replying on the law of limitation, Mr Nassor, learned advocate for the respondent submitted that his client was not aware of the wrongful seizure of the property based on the deed of gift whose existence he knew nothing until it was produced to him when he persisted in demands to reclaim I the property. It is argued that since

1997 TLR p298

KANNONYELE J

A the plaintiff did not know of these developments other than the general power of attorney he had given to the defendant, he had no way of knowing of the wrongful seizure not until he was shown the gift deed which, however, he disowns.

B By saying that the plaintiff had not in the plaint shown why he had not filed the suit since 1982 when the alleged wrongful seizure started to count against the plaintiff/appellant, I have no doubt that the appellant's counsel was having in mind the provisions of Ord VII Rule 7 of the Civil Procedure Decree, Cap 8 of the Laws although counsel did not go saying as much in quite clear C words. That rule says:

`Where the suit is instituted after the expiration of the period prescribed by the law of limitation, the plaint shall show the ground upon which exemption from such law is claimed.'

D In my considered opinion, this rule is inapplicable in the circumstances of this case where the plaintiff disowns and, therefore, challenges the validity of the deed of gift which purports to have been executed in 1982. If what he says is true (to be established or proven in evidence), the plaintiff E may be challenged for not fully establishing the cause of action for his failure to disclose as to when exactly the deed of gift was first shown to him which would thereby become the date when the cause of action arose. This, however, is no longer ground of objection now that it was excluded on appeal. But for the purpose of the law of limitation against the appellant, time cannot be F computed from 1982 when the article of conveyance was purportedly made because that is what the plaintiff disowns. Time cannot, therefore, be computed from the date the document was purportedly made because that in itself is an issue which needs proof one way or the other which is only possible upon production of whatever evidence the parties have and which either of them relies G on. Hence a preliminary objection is, in my view, not the proper forum for disposing of such an issue. The trial magistrate was therefore right in refusing to dispose of the suit on a preliminary point based on the law of limitation; the plaintiff could not plead exemption Ord VII Rule 7 computing same from events in 1982 the validity of which he disowns. Based on the law of limitation therefore H this appeal would stand to collapse.

On jurisdiction, s 13 of the Land Tribunal Act 7 of 1994 was cited as taking away primary jurisdiction I of the ordinary courts in respect of all matters respecting conflicting claims to land and vesting the

same on the tribunal to be established under s 3 of the Act (supra). The operative words of the A section provide as follows:

`13. The Land Tribunal shall have primary jurisdiction over proceedings instituted where parties have conflicting claims to land, including the following issues: . . .' (my own emphasis). B

The section then goes on to give in paras (a) to (r) specific examples of land disputes which the tribunal can handle under its jurisdiction.

Counsel for the appellant argues that this section (s 13 of the Act) provides (by those words) that C primary jurisdiction on all land matters including recovery of possession shall vest in the Land Tribunal alone and that it was wrong for the court to held that had or retained the jurisdiction

only because the Tribunal had not been constituted yet. On the other hand, counsel for the respondent argued that courts do still have jurisdiction because the Tribunal envisaged by the Act, has never D existed as yet and that with inherent powers conferred on the courts under s 129 of the Civil Procedure Decree, the courts are deemed to have powers to handle any suit and do whatever which enhances the interests and ends of justice. E

Mr Nassor, learned advocate further submitted that the hands of the courts should not be fettered to do justice and settle disputes where the sole organ vested with the right to exercise jurisdiction over certain or particular types of disputes does not exist. F

On my part, I do concur that s 13 of the Land Tribunal Act, 1994 confers primary jurisdiction in respect of disputes to land on the Land Tribunal to be established and constituted under ss 3(1) and 4 of that Act. With great respect, however, I do not read anything in that section which can be G construed as divesting jurisdiction from the ordinary courts in respect of matters related to land disputes which but for the coming into force of the Act (supra) they enjoyed hitherto. In my understanding the section does not deprive the courts of their erstwhile jurisdiction over land related disputes previously enjoyed by those courts. The section only confers primary jurisdiction in such H matters to quasi-judicial tribunal over and above but without undoing that which hitherto is enjoyed by the ordinary courts to handle similar disputes. This is concurrent jurisdiction being conferred on two different organs without interfering with same which the elder of the two organs enjoyed hitherto. Incidentally, the older of these organs happens to be the courts which I

A have always enjoyed superior jurisdiction over those of quast-judicial tribunals.

I am fortified in my view by the wording of s 34 of the Magistrates' Courts Act No 6 of 1985 where the possibility of there being two or more courts having concurrent jurisdiction in respect of the same kind of proceedings is lauded. It is therefore not beyond the scope and province of the B legislature that it may have intended to confer adjudication jurisdiction to the tribunal over and above that hitherto enjoyed by the ordinary courts. Be that as it may, what is certain to me is that the section not anywhere in the statute is there provided that primary jurisdiction in land disputes shall vest solely on the Land Tribunal alone. Nor do I read anywhere thereunder where it is provided that C jurisdiction formerly enjoyed by the ordinary courts in land related disputed is thereby divested from those courts or any such of them of any particular description. So jurisdiction of the courts in respect of land disputes in my view, is still intact and in full force notwithstanding the provisions of s D 13 of the Act 7 of 1994.

If I may go further, I may only add that probably, and I emphasize `probably', the magistrate would E have been right if he held that non-appointment of the chairman of the Tribunal by the President as provided under s 4(1) of the Act may, by inference, be construed as a deliberate suspension of the Act by the President for whatever reason which in any case he is not bound to disclose. Only this may be interpreted as an act to suspend the Act so that it may not operate even with its coming into F force as provided under s 1(2) thereof. But this is by no means deprivation of jurisdiction from the courts which hitherto they enjoyed in land disputes.

If anything more, it is that where jurisdiction is conferred concurrently on courts and on tribunals of G various juridical descriptions, proceedings should normally and preferably be commenced in one of themselves lowest placed in the hierarchy. It is undesirable in such situations that original proceedings should go straight to the highly placed again in the set up. But this is not to say that the later is thereby deprived of the primary or original juridical jurisdiction in the matter. To the contrary. H This, together with the other in the foregoing paragraph are, however, only but observations in passing. They are not the scope of this appeal. But even if they were the very fact that the tribunal does not exist and is not operative for the time being would make it more meaningful and I reasonable that the Resident Magistrate entertained the suit. He should now not be

hindered to dispose of it and settle the dispute by ineffective purportedly preliminary points of law. It A is not in the interests of justice to do so.

The cumulative and ultimate result of these views is that this appeal is dismissed. The respondent to have his costs in this court and in the court below. It is so ordered. B

1997 TLR p301

C

[zRPz]CHRISTOPHER GASPER AND OTHERS v TANZANIA HARBOURS AUTHORITY 1997 TLR 301 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Bubeshi J

D

MISCELLANEOUS CIVIL CAUSE 36 OF 1996
17 November 1997 E
Flynote
Civil Practice and Procedure - Courts - Jurisdiction - Employment law - Redundancy - Parties free to go to Industrial Court or ordinary courts where issues of redundancy concerned
Civil Practice and Procedure - Parties - Representative suits - Proper notice required in terms of Order 1 Rule 8 F
-Headnote
The respondent raised two preliminary objections to the applicants' suit in the High Court, firstly that it was a labour dispute as covered by the Security of Employment Act Cap 574 and the Inductrial G Court Act 1967 and the ordinary courts were therefore barred from hearing such claims by virtue of ss 28 and 42 of the Industrial Court Act, and secondly that the plaint was bad in law in that the court should have issued public notices of institution of the suit to relevant persons and that this had not been done.
Held: H

(i) The plaintiffs' complaint was against what they termed `retrenchment': this was not similar to termination or dismissal but was synonymous with redundancy. There was no

specific provision which placed the issue of redundancy under the Industrial Court Act and therefore employees were free to go to the ordinary courts or the Industrial Court where issues of redundancies or retrenchments were concerned; I

1997 TLR p302

A (ii) The failure to comply with Order 1 Rule 8 was fatal: although a representative suit had been instituted notice of the institution of the suit had to be given to all persons having an interest in the suit.

Case Information

Second preliminary objection upheld.

B Cases referred to:

1. Kitundu Sisal Estates v Shingo [1970] EA 387
2. Mohamed v General manager Kunduchi HCD No 43
3. Mohamed Kondo & 11 others v Attorney General Civil Appeal No 24 of 1981 (unreported)

C Dr Mwakyembe for the plaintiffs.

Lyimo for the defendant.

[zJDz]Judgment

Bubeshi J:

D In course of hearing this suit, Mr Lyimo learned counsel for the defendants has raised two preliminary objections on law. First that this being a labour dispute, it is covered by the Security of Employment Act, Cap 574 and Industrial Court Act, 1967 as amended by Act 2 of 1993. Mr Lyimo has argued that redundancy is covered under s 6(1)(g)8 of Caps 574 and ordinary courts are E therefore barred to hear such claims by virtue ss 28 and 42 of same Act. Similarly that, in terms of s 40(1) of the Industrial Court Act, such claims cannot be heard by ordinary courts. Mr Lyimo therefore is questioning the jurisdiction of this court to hear such a matter. The court was referred to F the case of Kitundu Sisal Estates v Shing (1) and Mohamed v General Manager Kunduchi (2). Mr Lyimo submitted that the appropriate procedure has been lain down under s 4 read together with ss 1 and 2 of the Employment Ordinance.

On the issue of redundancy he submitted that the same is not one of the contractual matters; citing G as an authority in point the decision by the Court of Appeal in the case of Mohamed Kondo & 11 Others v Attorney General (3). Secondly Mr Lyimo attacked the plaint for being bad in law in that it contravenes Ord 6 Rule 15; that the rectification is not dated and neither is it shown where it was verified. Further he complained that Order 1 Rule 8 was not fully complied with by the plaintiff in that H after leave was granted, the court should have issued public notices of institution of the suit to all such persons. He submitted that no such publication has been done and yet the number of the persons affected is about one thousand seven hundred people . Mr Lyimo submitted that in I absence of a proper notice and its service, the essence of Ord 1 Rule 8 is

1997 TLR p303

BUBESHI J

defeated and some one thousand interested persons have been left out. He prayed for the plaint to A be struck out.

Dr Mwakyembe for the plaintiff did not agree. He submitted that the matter before this court is purely contractual -- that it concerns a purported agreement between plaintiff and defendant and that there is no reliance on the Security of Employment Act nor the Employment Ordinance. B

Dr Mwakyembe contended that it was erroneous to suggest that retrenchment is synonymous with termination or dismissal, which fall under Cap 574. He stressed that retrenchment is a contractual matter and it is based on an agreement between employer and employee. C

On verification Dr Mwakyembe was of the view that in event there were mistakes, this could be corrected -- Rule 17 of Ord 8. As to the public notice or publication Dr Mwakyembe submitted that leave of court and been obtained to file a representative suit and a list of those interested has been D accepted by the court therefore public notice/publication has been dispensed with. He also added that this court has the power to order parties to be joined or struck out -- Ord 1 Rules (9) and (10). And were fact of a misjoinder of parties cannot be a reason for the denial of ones rights. E

In reply Mr Lyimo reiterated that the plaintiffs have not fully complied with Rule 8 of Ord 1 which is mandatory, and no leave to amend the plaint has been sought. Mr Lyimo attacked the list attached to the plaint in that it contains names which are not counter-signed. F

Mr Lyimo was of the view that since there are out there some one thousand workers interested in this matter a published notice will be material in this regard.

The issues before this court are two, namely, whether this court has jurisdiction and if so the G plaintiff's plaint is properly verified and that the provisions of Ord 1 Rule 8 have been complied with.

I have had time to peruse the plaint -- and the plaintiff's complaint is against what they prefer to call as retrenchment I do not think this is similar to termination or dismissal. In my view retrenchment is synonymous with redundancy. The issue of redundancy may fall under the Industrial Court Act, H although there is no specific provision that places the issue of redundancy under the Industrial Court Act and therefore employees are free to go to ordinary courts or the Industrial Court where issues of redundancies or retrenchment are concerned. I

1997 TLR p304

BUBESHI J

A I must at this juncture state that the cited authorities by Mr Lyimo dealt with issues of summary dismissal while here the issue is retrenchment and the procedure adopted by the employer Tanzania Harbours Authority. These employees were not dismissed but they were retrenched. The two situations are quite different and I find the cases quoted of little help, if any, to the matter at hand.

B On the defective plaint and lack of public notice. Order 1 Rule (1) is clear, it states:

`Where there are numerous persons having the same interest in one suit, one or more of such persons may, with C the permission of the court sue or be sued . . . on behalf of . . . all persons interested. But the court shall in such case give, at the plaintiff's expense, notice of the

institution of the suit to all such persons either by personal service or, where from the number of persons or any other cause such service is not reasonably practicable, by public D advertisement, as the court in each case may direct' (emphasis mine)
The essence of this rule is therefore that the `identities of the other persons interested in this claim must be known to the court, although a representative suit is instituted on their behalf. Necessary E because the court is under duty to give notice of the institution of the suit to all such persons and secondly, the doctrine of res judicata applies all such persons' as per Samatta J, as he then was in (PC) Civil Appeal No 74 of 1985.
F It is apparent therefore that failure to comply with Rule 8 in whole in fatal despite the fact that leave was granted. The attached list does not help the plaintiff in that it cannot waive the requirement of Rule 8 cited above.
In premises I uphold the second preliminary objection raised by the defendant. In the event the plaintiff option to pursue this claim in this court, it is mandatory that Rule 8 be fully complied with. G Claim dismissed with costs to the defendant.
1997 TLR p305
A
[zRPz]DR ALLY SHABHAY v TANGA BOHORA JAMAAT 1997 TLR 305 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Samatta JA

CIVIL APPLICATION 48 OF 1997 B
18 November 1997
Flynote
Civil Practice and Procedure - Appeals - Cross-appeals - Application for extension of time within which to lodge - Rule 8 read with Rule 87(2) of Tanzania Court of Appeal Rules - Those who come to court must not show C unnecessary delay in doing so; they must show diligence
-Headnote
The applicant organisation applied for an extension of time within which to lodge in the Court's D registry and serve upon the respondent notice of cross-appeal. The only reason given for the delay was that the applicant had delayed in instructing its counsel to prefer a cross-appeal.
Held:
(i) Whilst procedural rules were meant to facilitate and not always defeat justice, there was E no warrant for relaxation in the applicant's favour of the stipulation laid down in Rule 87(2).
Case Information
Application dismissed.
Case referred to:
1. Edwards v Edwards [1968] 1 WLR 149 F
Kalunga for the applicant

Maira for the respondent.
[zJDz]Judgment
Samatta JA: G
This is a short application. Tanga Bohora Jamaat, the applicant organisation, applies under Rule 8 of the Tanzania Court of Appeal Rules 1979 (the Rules) as read together with Rule 87(2) of the said rules for extension of time within which to lodge in this Court's registry and to serve upon the H respondent, Dr Ally Shabhay, notice of cross-appeal. The application is opposed by the respondent.
The background to the application may, I think, be stated as follows. The respondent sued the applicant in the High Court for several reliefs. He was successful only partially. Aggrieved by that part of the decision on which he failed, he lodged an appeal against the same in this Court. Mr I Kalunga, the advocate who represented
1997 TLR p306
SAMATTA JA
A the applicant in the High Court and before this Court in this application, was served with the memorandum of appeal and the record of appeal on or about 14 July 1997. About four weeks later, the applicant organisation, which has its office in Tanga, instructed the learned advocate to lodge a cross-appeal. On 28 August 1997 the learned advocate filed in the registry of this Court the instant B application. Rule 87(2) of the Rules makes it mandatory for a respondent to an appeal who wishes to lodge a cross-appeal to lodge a notice of cross-appeal in the appropriate registry not more than thirty days after the service on him of the memorandum of appeal and record of appeal. Rule 8, however, confers on this Court the power, where sufficient reason is shown, to extend the time C limited by that sub-Rule. The basic question in this application is, therefore, whether such reason has been shown.
In its affidavit supporting the application, sworn by Mr Kalunga, only one reason is given for the delay D in complying with Rule 87(2): it is said that the applicant delayed in instructing its counsel to prefer a cross-appeal. Mr Kalunga urged me to take into account that it was not easy for his client to read the record of appeal and discover an error by the learned trial judge in it, and hold that the delay in lodging notice of cross-appeal was not too unreasonable. Mr Maira, the learned advocate for the E respondent, opposed the application. He submitted that no satisfactory explanation has been given for the delay. The learned advocate went on to urge me to dismiss the application.
F I have carefully considered the competing arguments and in the end I have reached the conclusion that no basis has been shown in this application why the extension of time sought should be granted. As rightly submitted by Mr Maira, in the affidavit sworn in support of the application no explanation whatsoever is given why it took the applicant so long to instruct Mr G Kalunga to lodge a cross-appeal. While I am alive to the need of courts in this country satisfying consumers of justice that they (the courts) always remember that procedural rules are meant to facilitate and not defeat justice, I do not entertain any doubt that what Sir Jocelyn Simon P, said in the following passage in his judgment in Edwards v Edwards (1) at 151, is applicable to the H administration of justice in this country:

`So far as procedural delays are concerned, Parliament has left a discretion in the courts to dispense with the time requirements in certain respects. That does not mean, however, that the rules are to be regarded as, so to speak, I antique timepieces of an ornamental value but no chronometric significance, so that lip service only need

be paid to them. On the contrary, in my view the stipulations which Parliament has laid down or sanctioned as to A time are to be observed unless justice clearly indicates that they should be relaxed.'

I agree with Mr Maira that there is, in the instant application, no warrant for relaxation in the applicant's favour the stipulation as to time laid down in Rule 87(2) of the Rules. Those who come B to courts of law must not show unnecessary delay in doing so; they must show great diligence.

The application stands dismissed with costs.

1997 TLR p307

D

[zRPz]MAGESA BYARO v MUSOMA TOWN COUNCIL 1997 TLR 307 (HC)

Court High Court of Tanzania - Mwanza
Judge Lugakingira J

CIVIL REFERENCE 4 OF 1997 E
25 November 1997
Flynote
Civil Practice and Procedure - Court - Jurisdiction - Reference to High Court - Academic and unncessary references - After dimissal of petition - Order XLI rule 1 F
-Headnote
The applicant presented an election petition to the Resident Magistrate's Court of Musoma which dismissed the petition on a preliminary issue of competence, the court holding that it was misconceived. The court however entertained doubt as to its jurisdiction in the matter and ordered that the matter be referred to the High Court under Ord. XLI of the Civil Procedure Code No 49 of G 1966.
Held:
It was evident from the provisions of Ord. XLI that there should be a matter pending in Court, either a trial or execution in order for a reference to be made to the High Court. In the present matter the trial Court had finalised the matter, leaving nothing to be concluded by an opinion of the court. The H reference was therefore improperly made.
Case Information
No order made.
[zJDz]Judgment
Lugakingira J:

The applicant first presented an application, then a petition, before I
1997 TLR p308
LUGAKINGIRA J
A the Resident Magistrate's Court of Musoma challenging his removal as chairman of the respondent council at a sitting of the respondent's councillors. He was seeking a declaration that his removal was void and ineffective and an injunction to prevent a similar decision in future. He B purported to bring the petition under s 27(1)(d) of the Local Government (Urban Authorities) Act 1982, the Local Authorities (Elections) Act 1979 and the Elections (Local Authorities) (Election Petitions) Rules, 1984. The petition was dismissed with costs on a preliminary issue of competence, the court holding that it was misconceived. That done, the Court made the following C further orders:

`Order: Whereas the Court is sure the Petition was misconceived and was brought under the wrong provisions, the Court however entertains some doubt as to whether the declaration sought can be granted in this Court. On that D point of jurisdiction, the Court now would seek clarification from the High Court. The file thus is referred to the High Court under s 71 (sic) and Ord XLI of the Civil Procedure Code No 49 of 1966.'

E I think, with respect, this reference was unnecessary and academic in view of the decision already reached by the Court. The decision of the Court dismissing the petition for being incompetent and misconceived finally disposed of the matter before that Court and was not contingent upon the decision of the High Court. To put it differently, the opinion of this court, if any were to be given, would not influence the outcome of the petition one way or the other, and no-one I F can think of is anxiously waiting for it, for there is no petition still pending in the lower court. Section 77 (not 71 cited in the trial court's order) and Order XLI of the Civil Procedure Code are designed for practical but not academic purposes. To cite part of Ord XLI, Rule 1, these provisions may be resorted to --

G `Where, before or on the hearing of a suit in which the decree is not subject to appeal, or where in the execution of any such decree, on which the court trying the suit or appeal, or executing the decree, entertains reasonable doubt ...' (my emphasis)

H It is evident from the words and phrases emphasized that there should be a matter pending in Court, either a trial or an execution, in order for a reference to be made to the High Court. To that end the Court seized of the matter may stay the proceedings pending the decision of the High Court or may, notwithstanding the reference, proceed and pass a decree or make an order contingent I upon the
1997 TLR p309
LUGAKINGIRA J
decision of the High Court (Rule 2). In the reference before me, however, the trial court finalised the A matter, leaving nothing to be concluded by any opinion of this Court. I am therefore of the view that the reference was improperly made and cannot be answered the way it was intended.

This reference is important in one aspect: the lower court doubted the nature of the case and its B own jurisdiction, yet it went ahead and disposed of it. With respect, that was improper.

Instead of proceeding to dismiss the petition, the court should have complied with the provisions of Ord XLI, Rule 6(1) which reads:

`6(1) -- Where at any time before judgment a court in which a suit has been instituted doubts whether the suit is C cognizable by that court or is not so cognizable, it may submit the record to the High Court with a statement of its reasons for the doubts as to the nature of the suit.'

There was every reason to doubt whether the proceeding in question was properly presented and D whether it was presented in the proper court. The applicant's prayer actually turned on the prerogative orders of certiorari and prohibition and these are grantable only by the High Court and attract a special procedure. Had the matter been brought to the attention of this Court at the appropriate stage, I have no doubt that appropriate orders would have been made under sub-Rule E (2). Admittedly, the provisions of sub-Rule (1) are permissive but I think in order to ensure that justice is not only done but is also seen to be done a court entertaining doubt as to its jurisdiction F would well be advised to seek the opinion of the High Court instead of pressing ahead with its decision. It is ironical, indeed, that in this case the lower court could press ahead with its decision and still turn around to inquire about its jurisdiction. The inquiry was no longer of any value to the parties but was once again merely academic. G

Apart from these observations, I make no order.

1997 TLR p310

A

[zRPz]BLUE STAR SERVICE STATION v JACKSON MUSSETTI 1997 TLR 310 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Nyalali CJ

B CIVIL APPLICATION 7 OF 1997

1 December 1997

Flynote

C Civil Practice and Procedure - Appeals - Application for stay of execution pending appeal - Decision sought to be stayed not accompanying the application - Application incompetent -Headnote

The applicant filed an application for the stay of execution pending the determination of an intended D apeal to the Court of Appeal. The decree of execution which was sought to be stayed was not attached to the documents nor were its terms disclosed in affidavits filed in support of the application.

Held:

E Since the Court was empowered to impose terms as it thought just upon an order of stay of execution it was assumed that the application would in any event be accompanied by the decision or sufficient information concerning such decision sought to be stayed and in the light of which the Court may determine whether to impose conditions and if so what conditions.

Where the decision sought to be stayed did not accompany the application and no information concerning the terms of F such decision was contained in the affidavit the application could not be anything but incompetent.

Case Information

Application dismissed

Matata for the applicant

G Rutaisire for the respondent.

[zJDz]Judgment

Nyalali CJ:

This is an application for stay of execution of the decree of the High Court in a judgment dated 24 H April 1997 pending the hearing and determination of an intended appeal to the Court of Appeal. The application is supported by the affidavit of Salim H Shivji. A counter affidavit was filed by the respondent on 27 November 1997. When the hearing of the application was resumed today, 1 December 1997, after it had been adjourned on 26 November 1997, Mr Matata, learned advocate I asked for leave to file and serve a supplementary affidavit. Initially Mr Rutaisire, learned advocate for the

respondent objected to the request, after considering points raised by the Court, he rightly withdrew A the objection and the supplementary affidavit was filed and duly served.

There is one important problem with this application. The decree of which execution is sought to be stayed is neither attached to the documents filed nor are its terms disclosed in affidavits filed in B support of the application.

Mr Rutaisire has submitted that the effect of these omissions is to render the application incompetent. Mr Matata on his side has argued that since there is no specific requirement for the decree to accompany the application, the omission is curable by allowing the applicant to supply the decree which, after considerable delay, was at last supplied to applicant by High Court registry on C 18 November 1997.

The relevant provisions of Rule 9(2) of the Tanzania Court of Appeal Rules, 1979 under which this application is made states: D

> `(2) Subject the provisions of sub-rule (1), the institution of an appeal shall not operate ... to stay execution, but the Court --
>
> (b) in any civil proceedings, where a notice of appeal has been lodged in accordance with rule 76, order a stay of execution, on such terms as the Court may think just.' E

It is obvious that since the Court is empowered to impose terms as it may think just upon an order of stay of execution, it is assumed that the application would in any event be accompanied with the decision or sufficient information concerning such decision sought to be stayed and in the light of F which the Court may determine whether to impose conditions and if so, what kind of conditions. That being the position, it follows that where the decision sought to be stayed does not accompany the application and no information concerning the terms of such

decision is contained in the affidavit, the application can not be anything but incompetent, and I so find. Consequently, this G application is hereby dismissed with costs.
1997 TLR p312
A
[zRPz]SAID SALIM BAKHRESSA v ALLY A NGUME 1997 TLR 312 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Lubuva JA

B CIVIL APPEAL 31 OF 1997
12 December 1997
(An appeal from the ruling of the High Court of Tanzania, Dar es Salaam, Maina J)
Flynote
C Civil Practice and Procedure - Appeals - Defect in appeal - Proper course - Memorandum of appeal not conforming with Order IX Rule 2 - Appeal ought not to be dismissed
Civil Practice and Procedure - Representation of parties - When it can be inferred that counsel duly instructed
D Civil Practice and Procedure - Summons - Service of - Party claiming non-receipt of notice although summons served on employee at party's address - Person who received summons not called to testify on whether party aware of summons
-Headnote
E The appellant appealed against a decision of the High Court which had dismissed an application to revise a district court civil suit for damages. On appeal there were three issues which the Court was required to decide, viz (a) whether the counsel who had appeared for the appellant had been instructed to do so; (b) whether service of summons had been effected on the appellant; and (c) F whether the resident magistrate's court had had jurisdiction to entertain the appellant's application for an extension of time.
Held:
G (i) The learned judge in the High Court had erred in invoking a course of action which was not provided for by dismissing the appeal when he found the memorandum of appeal did not conform with the requirement of Order IX Rule 2. Instead of dismissing the appeal the proper course was to reject or strike out the appeal or return it to the appellant for amendment: Rule 3(1) of Order IX provided to this effect;
H (ii) Notwithstanding the impropriety of the order dismissing the appeal in terms of the provisions of the Civil Procedure Code, as long as the order still remained unvacated, the remedy open to the appellant was either to appeal to the court or to seek review of the matter by the High Court: to take the matter back to the court of the Resident Magistrate I was highly misconceived;
1997 TLR p313

(iii) Generally, there is no formal procedure laid down for instructing an advocate to defend a A client in a trial: the instructions may be given by the client himself or any other person on his behalf. In the present case the instructions had been given by the appellant's nephew. In the circumstances further where the advocate had filed the written statement of defence; where the advocate had made it clear in a letter to the original plaintiff's advocate B that he was instructed on behalf of the appellant; and where the advocate had appeared in court in defence of the appellants at the trial and had gone to the whole length of preparing for a case and conducting it in court, it would be most unusual and improbable that the advocate would not have been properly instructed; C

(iv) In the circumstances where the summons had been served on an employee of a limited liability company at an address which had been indicated as the address of the appellant in his personal capacity and the process server had endorsed the summons to the effect that the appellant was away on safari at the time and the person who had received the summons had not been called to testify that the appellant did not receive notice thereof, D the appellant's complaint as to service of the summons had to be dismissed.

Case Information

Appeal dismissed with costs.

Case referred to: E

1. Kighoma Ali Malima v Abas Yusuf Mwingamno Civil Application No 5 of 1987 (unreported)

Kisusi for the appellant.

[zJDz]Judgment

Lubuva JA: F

This is an appeal against the decision of the High Court (Maina J) in High Court Civil Revision No 28 of 1985 dismissing an application for revising Morogoro District Court Civil Case No 16 of 1993. The facts as found at the trial are brief and may be stated as follows: In Civil Case No 16 of 1993 at G Morogoro Resident Magistrate Court, the respondent had sued Ally Abdallah Kigozi, Jamal Suleiman and Said Salim Bakhressa, the appellant who, at the trial were respectively referred to as the first, second and third defendants. The respondent claimed a total of Shs 9,930,910/= as damages suffered following an accident which involved the respondent's lorry Mercedez Benz in H make, Registration No MG 4709. The other motor vehicle Registration No TZC 7632 which collided with the respondent's lorry belonged to the second defendant and its driver was the first defendant. It pulled a trailer, Registration No TZC 91574 belonging to the third defendant as the registered owner. At I

A the end of the trial, the respondent obtained judgment against the defendants who were severally held liable to pay him a total sum of Shs 7,948,457/= including costs and interests. From that decision the third defendant at the trial, Said Salum Bakhressa, the appellant, applied for revision in the High Court. The application for revision was dismissed. The appellant is appealing to this Court.

B Mr Kisusi, learned counsel who represented the appellant in the High Court, is also appearing in this appeal. He has filed an eight-point memorandum of appeal. From these grounds, it is our view that the following are the issues of substance upon which the determination of the appeal turns C around. These are as follows:

1. Whether Mr Mbezi had been instructed to represent the appellant;
2. Whether the service of summons was effected on the appellant and

D 3. The jurisdiction of the Resident Magistrate Court Morogoro to entertain the appellant's application for extension of time.

We will first deal with the question of jurisdiction. This is raised in grounds two and seven of the E memorandum of appeal. As indicated, following the decision in Morogoro Civil Case No 16 of 1993, the matter was taken on appeal as High Court Civil Appeal No 32 of 1994. On 3 August 1994, the appeal was dismissed by the High Court on account of the fact that it was defective. As a result the appellant took the matter back to the Resident Magistrate's Court Morogoro applying for extension of F time in which to apply for extension of time in which to apply for setting aside the decision of 25 April 1994 in Morogoro Civil Case No 16 of 1993, the subject matter of the dismissal by the High Court on 3 August 1994. The learned Senior Resident Magistrate held inter alia that the court had no jurisdiction to deal with the matter which had been dealt with by the High Court (Mackanja J). As G already observed, in Civil Revision No 28 of 1995 the High Court (Maina J) upheld the decision of the Resident Magistrate on the point of jurisdiction.

Mr Kisusi, learned counsel forcefully criticised the learned judge for upholding the trial magistrate on H the question of jurisdiction. In support of this submission, he advanced two reasons. Firstly, that the appellant Said Salim Bakhressa had not appealed to the High Court. It was the first defendant in Morogoro Civil Case No 16 of 1993 who, through the services of Mr Mbezi, learned advocate preferred Civil Appeal No 32 of 1994 Mr Kisusi urged. That is, Mr Mbezi was not instructed to prefer I the appeal on behalf of the

appellant. Secondly Mr Kisusi stated, the appeal was dismissed by the High Court on a mere A technicality in which case the applicant was not barred from filing such an application before the Court of the Resident Magistrate at Morogoro.

The respondent who appeared in person at the hearing of the appeal did not have much in B response to this submission. Naturally, being a lay person, he left the matter to the court to decide.

As the complaint on jurisdiction is based on the High Court Civil Appeal No 32 of 1994, we think it is desirable to examine briefly the manner in which the appeal was dealt with by the High Court on 3 C August 1994 (Mackanja J). From the record it is apparent that the learned judge dismissed the appeal because of what he described as incurable defect in that the memorandum of appeal was not accompanied by a copy of the extract of the decree. This is provided for under Ord XXXIX, Rule 1(1) of the Civil Procedure Code, 1966. However, with respect we think the learned judge invoked a D course of action which is not provided in the

Civil Procedure by dismissing the appeal when he found the memorandum of appeal did not conform with the requirement of Ord XXXIX Rule 2. Instead of dismissing the appeal the proper course is to reject or strike out the appeal or return it to the appellant for amendment. Rule 3(1) of Ord XXXIX of the Civil Procedure Code provides to this E effect.

With regard to Mr Kisusi's complaint that the learned judge erred in upholding the decision of the trial magistrate that the magistrate's court at Morogoro had no jurisdiction to entertain the application, we have no hesitation in stating at once that there is no merit in it. As observed, F following the decision in Morogoro Civil Case No 16 of 1993, the matter was taken on appeal on behalf of the appellant and his other two co-defendants. That was Appeal No 32 of 1994 in the High Court at Dar es Salaam which was dismissed on 3 August 1994. Notwithstanding the impropriety of the order of dismissing the appeal in terms of the provisions of the Civil Procedure Code, we are of G the view that so long as the order still remained unvacated, the remedy open to the appellant was either to appeal to this Court or to seek review of the matter by the High Court. To take the matter back to the Court of the Resident Magistrate at Morogoro, was, with respect, highly misconceived. The claim by Mr Kisusi that the Appeal No 32 of 1994 was dismissed on technicalities as a H justification for that course of action is to say the least, a lame excuse which cannot invest the Court of the Resident Magistrate at Morogoro with jurisdiction to deal with a case that had already been dealt with by the High Court. We are therefore I

A satisfied that the learned judge correctly upheld the trial magistrate in the decision that the trial magistrate's court had no jurisdiction to entertain the application. This ground thus fails.

The next important issue concerns the instructions to the advocate. That is, whether in the circumstances of the case, Mr Mbezi, learned counsel was in fact instructed to represent the B appellant. This falls within ground three of the memorandum of appeal. Mr Kisusi vehemently maintained that Mr Mbezi was not instructed by the appellant to represent him (appellant) at the trial. That it was one Islam Ally Salehe who had instructed Mr Mbezi to represent all the three defendants including the appellant. In that case, Mr Kisusi insisted, as the advocate appeared in court on behalf C of the appellant without the instructions of the appellant, the effect of it was that the appellant was not represented at all at the hearing of the case. The learned judge like the trial Senior Resident Magistrate believed that Mr Mbezi, learned advocate had been duly instructed to represent the appellant at the trial. Mr Kisusi strongly seeks to fault the judge on that. In considering this matter the following factors are, to our minds, relevant. First, from the initial stages of the case, it is D common ground that Mr Mbezi, learned advocate was instructed by Islam Ally Salehe (DW2) a nephew of the appellant to defend the three defendants at the trial including the appellant. Generally, there is no formal procedure laid down for instructing an advocate to defend a client in a trial. The instructions may be given by the client himself or any other person in that behalf. Here, the E instructions were given by Islam Ally Salehe (DW2) based in Morogoro and who describes the appellant as his uncle.

F Secondly, Mr Mbezi filed the written statement of defence in the case for the three defendants including the appellant. Thirdly, from the record, it is clear that Mr Mbezi makes it clear in his letter of 29 September 1993 addressed to Mr Massati, learned advocate for the respondent, (the original G plaintiff) that he was instructed by Jamal Suleiman personally and on behalf of Said Suleiman Bakhressa, the appellant. He denied liability on the part of the appellant. Fourthly, on the dates set for the hearing of the case, Mr Mbezi appeared in court in defence of the defendants including the H appellant. Fifthly, it is most unusual and indeed improbable that an advocate would go the whole length in preparing a case as well as conducting its defence in court if he is not assured of the instructions and the attendant fees. With respect, we do not think that Mr Mbezi, a lawyer of long standing, is an exception to this practical principle in the legal practice. From these circumstances, I on a balance of probabilities,

we agree with the learned judge that Mr Mbezi, learned counsel was duly instructed to represent the A appellant at the trial. We can find no reason to differ with the learned judge in his finding of fact on this issue. The complaint on this ground is unfounded.

Then there is the question of the service of the summons which was raised in ground three of the B memorandum of appeal. The learned judge was satisfied that the appellant was served. Mr Kisusi, learned counsel has strongly contended that the appellant was not served. He advanced two reasons. One, that the summons was served on an employee of a limited liability company which is a separate legal personality. Second, that as the appellant was at the time outside the country, he was not aware of the case. Having taken the view that Mr Mbezi, learned counsel had been C instructed to represent the appellant, we proceed to examine the issue of the service of summons against that background. We are respectfully in agreement with Mr Kisusi, learned counsel that there was no personal service on the appellant. This is so because the notice of hearing which was D addressed to the appellant was not served on him. According to the process server, it was served on one Holla Salum Hafidh, an employee of Said Salim Bakhressa and Company, a limited liability company. As seen from Annexure `SSB4' the process server had endorsed the summons E in Kiswahili `Bakhressa nimeambiwa yuko nje ya nchi, amesafiri.' This translates to the effect that Bakhressa is away on safari out of the country. It was however the same address ie Paa Street Kariakoo which was indicated in respect of Said Salim Bakhressa as an individual and Said Salum Bakhressa and Company Limited. With that address used in effecting the service of summons the F question is whether the appellant was made aware of the case and the date set for trial. In their affidavits, the appellant and Islam Ally Salehe deny that Holla Salum Hafidh passed on the G summons or message to the appellant. The learned judge did not believe them on this. It being a matter of credibility on the part of the appellant, it is incomprehensible that no affidavit sworn by Holla Salum Hafidh was filed. That would have supported the appellant's claim that the employee Holla Salum Hafidh did not pass on the summons or information regarding the case to the H appellant. Nor is there any explanation by Mr Kisusi, learned counsel as to why the affidavit of Holla was not filed. In somewhat similar situation, in the case of Kighoma Alli Malima v Abas Yusuf Mwingamno (1),

counsel for the applicant had failed to file an affidavit of the messenger who was instructed to serve the respondent's counsel to show the reason for failing to I
1997 TLR p318
LUBUVA JA
A effect the service as instructed. There, this Court held, among others that counsel's mistake in not filing the affidavit of the messenger was not sufficient reason for extension of time, it was fatal. In the instant case, the unexplained omission to file the affidavit of Holla was further testimony raising doubts that the appellant was not truthful. Accordingly, applying the principle from the B Kighoma Alli Malima's case (supra) to this case, we are in agreement with the learned judge that the appellant was served. Furthermore, as Mr Mbezi, learned counsel had appeared and defended the appellant throughout the trial, it goes without saying that the question of the case being heard ex-parte does not arise. For these reasons we dismiss the appellant's complaint on service of C summons.
Before concluding this matter, we would like to comment briefly on the following issue. That concerns an advocate's denial to have instructions to represent a party at the trial and to raise that D as a ground of appeal. At the hearing of this appeal, Mr Kisusi had repeatedly made the point that though Mr Mbezi defended the appellant at the trial, he had not been instructed by the appellant. This is also apparent from the affidavits of Mr Mbezi and Mr Kisusi on this point. As observed by Kaji J when granting leave to appeal, this is a very peculiar and novel aspect pertaining to counsel's E instructions to defend. It is common knowledge and elementary that there is no rigid or formal manner in which counsel receive instructions from clients to enter appearance in court. This is a matter for agreement between counsel and clients. Under Ord 3 Rule 4 of the Civil Procedure Code, Mr Kisusi urges that the courts below should have pressed for Mr Mbezi to identify which client among the defendants he was representing. With respect, we do not agree. On record Mr F Mbezi quite clearly stated that he was appearing for all the three defendants including the appellant. The power under Ord 3 Rule 4 of the Civil Procedure Code, is discretionary and it is invoked where G the court has reason to require an advocate to produce written authority by the party to act on behalf of such a party. Otherwise, it is normal practice to take on the word of counsel appearing in court as officers of the court to be authentic. As a matter of fact, at the hearing of the appeal when H the Court asked for a written authority from Mr Kisusi to act for the appellant, he had none! In that situation it is, to say the least, absurd ask for authority from Mr Mbezi in proof that Mr Mbezi was appearing on behalf of the appellant.
I In our considered view what is important from the court's point of view is the ascertainment that the party is represented by counsel
1997 TLR p319
of not. In the event that the party is represented by counsel, the court is not bound to go further A behind inquiring whether in fact counsel was instructed. As a matter of ethics, counsel as officers of the court are taken seriously and solemnly on what they say in court. It is therefore highly improper in our view for counsel who has represented a party throughout the trial to swear an affidavit later on B appeal complaining of lack of proper instruction to appear on

behalf of the party. We think that this kind of behaviour not only borders on unprofessional misconduct but also gives an opportunity to dishonest losing parties to start cases afresh or institute appeals on grounds that they were represented at the trial without their instruction. This, if left unchecked, would lead to the C perpetration, of injustice and indefinite litigation in court. It is hoped that the relevant authorities in the judicial and the bar would be vigilant against a recurrence of such conduct.

In the event, for the foregoing reasons, we are satisfied that this appeal is devoid of any merit. It is D dismissed with costs.

1997 TLR p319

F

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v ELIAS MWASHITETE AND ANOTHER 1997 TLR 319 (HC)

Court High Court of Tanzania - Mbeya

Judge Mwipopo J

CRIMINAL APPEAL 33 OF 1996 G

17 December 1997

Flynote

Criminal law - Robbery - Proof of - Circumstantial evidence - Evidence must lead to irresistible inference

-Headnote

The Director of Public Prosecutions appealed against the acquittal of the first and second H respondents in the Mbozi District Court on a charge of armed robbery. The evidence was to the effect that 65 bags of coffee had been stolen from the complainant by a group of robbers in a lorry and saloon car. The robbers who were armed with a gun broke into a godown and took 65 bags of coffee, 45 bags of which were subsequently found in the possession of the first respondent. The I villagers whose

1997 TLR p320

A coffee had been stolen followed the lorry and kept guard over the first respondent's house until the police arrived to give them assistance. The first respondent's defence was one of an alibi. He claimed that he had been wrongly identified as one of the robbers and this identification had been based on an inadequate opportunity to make a proper identification. On appeal,

B Held:

There were a number of possibilities as to why some of the stolen coffee had been found in the first respondent's house. These were reasonable possibilities and it was accordingly inappropriate to use circumstantial evidence to convict the first respondent as the circumstantial evidence would C have to have lead irresistibly to the only conclusion that the first respondent was involved in the robbery in some way. The acquittal was accordingly in order.

Case Information

Appeal dismissed and ordered that the coffee in question be returned to the complainant as it had been sufficiently identified as being the complainant's property.

D Case referred to:

1. Athuman s/o Mwarungwe v Republic Civil Appeal No 18 of 1991 - (Mbeya) (unreported)

Mulokozi for the appellant.

E Mkumbe for the first respondent.

[zJDz]Judgment

Mwipopo J:

This appeal has been taken by the Director of Public Prosecutions against the acquittal of Elias s/o F Mwashitete as the first respondent who was the first accused in the lower court of Mbozi District Court and of Joseph s/o Michael as the second respondent who was the second accused in the same trial court. The acquittal was from charges of armed robberies contrary to ss 285 and 286 of the Penal Code as amended by Act 10 of 1989.

G The appellant at this stage was represented by the learned Mr Mulokozi State Attorney whereas the first respondent Elias s/o Mwashitete was represented by the learned Mr Mkumbe Advocate. The second respondent Joseph s/o Michael has gone underground and can't be traced through his H addresses given to the police at the time of his arrest and even through his address given to the trial court at the time of his acquittal being PO Box 304, Mbozi Mechani of Mlowo village c/o Ten cell leader James s/o Shangwa. Both sides asked the court to proceed with the appeal with the present respondent and defer the appeal against the second respondent to another future date in order to I do quick justice to the first

1997 TLR p321

MWIPOPO J

appellant who has always been attending this court both by himself in person and his advocate, The A Mbeya RCO (Regional CID Officer) undertook to continue looking for the second respondent in order to serve him to appear for this appeal.

The written grounds of appeal of the Director of Public Prosecutions were summarized by the learned Mr Mulokozi that the trial court was wrong to acquit the first respondent despite the B overwhelming evidence that the complainants traced the robbers' motor vehicle from the scene of the armed robbers at their Iporoto Village Primary Cooperative Society's go down to the house of C the first respondent at Lungwa Village; that part of their sixty-five bags of coffee stolen and loaded in the robbers motor vehicle at gun point within their sight found their way to the house of the first respondent and the same forty-five bags were properly identified by their owners that the first respondent was seen and identified handing the stolen sixty-five bags of coffee at his house; and D lastly, that the doctrine of recent possession should has been applied to find the first respondent guilty of armed robbery as charged in view that the first respondent was found with the stolen sixty-five bags of coffee hardly five hours after they were robbed from the Iporoto Village Cooperative Society. The other ground of appeal involved an order for restitution of the forty-five E bags of coffee seized by the police from the first respondent to the

same first respondent. The learned Mr Mulokozi argued that since the identity of the sixty-five bags of coffee had been well established to belong to different peasant members of Iporoto Cooperative Society by their special F numbers and as shown in Exhibit P4.

On the other hand the learned Mr Mkumbe for the first respondent has vehemently opposed this appeal and supported the decision of the trial Mbozi District Court in acquitting the first respondent G as well as ordering the forty-five bags of coffee to revert to him. The learned Mr Mkumbe Advocate argued that no eye witness identified the first respondent to have been seen at the time of the robbery at Iporoto Cooperative Society.

The learned Mr Mkumbe advocate further argued that the identity purportedly made by PW2 of the first respondent at his house while he was with the occupants of the robbers lorry was dubious and H unreliable for it was based on clothes only at a long distance, 100 paces away at night or dawn, and that the same clothes were not proved to belong to the first respondent.

Similarly, on the identity of the forty-five bags of coffee found at the house of the first respondent, I the learned Mr Mkumbe argued,

A that they belonged to the first respondent who was a good farmer with 61/2 acre coffee farm from which he harvested them and he told the police about them even before they searched his house.

The learned Mr Mkumbe further counter argued that since the family of the first respondent was not B at home for the entire day of 6 September 1995 it was possible that the villagers from Iporoto village who testified as PWs two, four, five and nine and who had kept vigil over the first respondent's house from 5.00 am until 6.00 pm when the police came are the ones who broke his house and planted inside that house the weighing machine of Iporoto Cooperative Society and C marked the forty five bags of coffee of the first respondent with their respective membership numbers in order to fix up the first respondent with this offence.

The ownership of the coffee, according to the learned Mr Mkumbe, was properly held by the trial D magistrate that it should be determined in another civil suit. He cited the case of Athuman s/o Mwarungwe v R (1) as an authority that ownership dispute over property should be determined in a civil suit.

The Trial Magistrate, the learned Mr Safari, seemed to disbelieve the entire story of the prosecution E witnesses that they followed up the lorry of the robbers from their village of Iporoto up to the Lungwa village of the first respondent. He also held that the failure of the Iporoto villagers to mark the numbers of the robbers lorry, to block the road so that it could not leave the first respondent's F house, to raise an alarm and to summon the help of the villagers of Lungwa as well as to call the Lungwa village leaders to testify in court made them untrustworthy of any credibility. The trial magistrate further believed the testimony of the first respondent and held based on the credible defence of the first respondent that the Iporoto villagers are the ones who broke the house of the G first respondent planted in his house the weighing machine of Iporoto Cooperative Society and marked the bags of coffee of the first respondent with their numbers in order to incriminate the first respondent with this crime.

H At the first time the respondents were taken to the Mbozi District Court on 11 September 1995 there were three accused namely Elia s/o Mwashitete the present first respondent who was the first accused, Tobias s/o Mayele who was the second accused and Joseph s/o Michael who was the third accused the present second respondent. The charge sheet too contained two counts of armed robbery contrary to ss 285 and 286 of the Penal Code in the first count and the store I breaking and stealing contrary to s 296(1) of the Penal Code.

1997 TLR p323

MWIPOPO J

The same original charge sheet was substituted with another charge sheet on 4 December 95 after A the second accused Tobias s/o Mayele was on 20 November 1995 under 98(1) of the CPA by the withdrawal of the charge in his favour. The present two respondents were left in the present charge sheet to face the trial. The substituted charge sheet contained only one count of armed robbery contrary to of ss 285 and 286 of the Penal Code having left out the previously second count of store B breaking and stealing contrary to s 296(1) of the Penal Code.

As much as issues of credibility of witnesses and findings of facts are left to be determined by the trial court there seems to have been grave errors in the finding of the facts of the trial court which C need to be corrected by this court on first appeal. The background of the crime which occurred in Iporoto village twenty kilometres away at the scene of the crime was not considered seriously by the trial court. I better start from there. From the testimonies of PW1 Witson s/o Songa the Manager of Iporoto Rural Cooperative Society, PW2 Mateso s/o Kailon, PW3 Festo s/o Namoyela, PW4 D Fabiano s/o Kamola a committee member of Shanwe Iporoto Cooperative Society, PW7 Raisi s/o Malimoja the village Executive Officer (VEO) of Iporoto village government and PW10 Eliakim s/o Ali the watchman of Iporoto village Cooperative Society the sequence of the events was that at 3.00 am after midnight a lorry and a saloon car came to Iporoto Cooperative Society's coffee godown to E store break and steal coffee from it. PW10 the watchman sneaked into hiding in time to see what occurred. When the thieves started breaking the store he went to ring a bell signifying danger and most of the villagers came out from their homes in full vigour to give help to the watchman to F apprehend the burglars. But, they were met with a terrifying firing of bullets by the armed robbers which kept all the villagers at bay far away and in hiding. The armed robbers continued loading the sixty-five bags of coffee worth Shs 5,516,00/= and left undisturbed. But, it occurred to some G villagers that they should follow the lorry which was not moving very fast with bicycles to see where it went. Among such villagers was PW2 who followed the lorry for twenty kilometres until the lorry ended up in Lungwa village at the house of the first respondent. They didn't know where the saloon H car had gone. They kept in hiding about one hundred paces away from the house seeing the coffee bags being unloaded into the house of the first respondent without raising an alarm until the lorry later left that house for another unknown destination after 5.00 am. They decided to keep vigil over that house until morning when they informed the village leaders about this incident but the I

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MWIPOPO J

A village leaders and people refused to render them any help for fear of retribution from the first respondent until 6.00 pm when the police came from the District offices at Vwawa where some of the Iporoto villagers had gone to seek help. During the day more villagers continued pouring around the house of the first respondent until they became a big crowd. Some came with bicycles others B walked on foot for four hours such as PW7 who left Iporoto on foot at 8.30 am and reached the house of the first Respondent at 12.00 noon. Out of the whole crowd no villager from Lungwa village gave them any help of keen interest to enquire what was happening. But, no doubt it was a big C unheard of event in the vicinity for the house of first respondent to remain under guard by strangers from an unknown village. The village leaders of Lungwa were quite nervous and apprehensive of the whole episode, for the police found them at their village government's office also, waiting for the D police to come most likely.

With this background, which was not considered by the trial court in its assessment of the evidence as a whole, I find as a true fact all this narration of prosecution witnesses did happen.

E Since there was firing of guns at Iporoto village all the witnesses from Iporoto knew that the robbers were fully armed and meant business with their guns. It was expecting too much from them that they should have seized the lorry while it was unloading the coffee at the first respondent's house. Similarly they could not have raised an alarm for they could have been easily killed by F exposing themselves to the armed robbers. Failure to identify the numbers of the lorry can be easily be explained in the same vein of being scared to note such numbers and being novice peasants. Further they successfully traced their coffee and kept guard of it until the police came to give them assistance -- fifteen hours later on. The Iporoto villagers are courageous and vigilant citizens who G played their preventive role to protect their property to the best of their intelligence and means for which they ought to be congratulated. With this background I also dismiss the findings of the trial court that the Iporoto villagers are the ones who broke into the house of the first respondent and planted their weighing scales there and printed the bags of coffee of the first respondent with their H numbers in order to incriminate the first respondent. I find the opposite as testified by the prosecution witnesses to be the truth that the forty five coffee bags found in the house of the first respondent were deposited there by the armed robbers out of the loot they stole from Iporoto I Cooperative Society at gun point. Similarly, the weighing scales of Iporoto

Cooperative Society was stolen and brought to be kept in the house of the first respondent by the A armed robbers themselves.

As argued by the learned Mr Mulokozi State Attorney the issue of the identity of the forty-five bags of coffee was conclusively proved to belong to the different members of the Iporoto village villagers because their numbers were found marked on the bags and as per their cooperative society's office B book exhibit P 4. To find that the villagers of Iporoto village went and broke the doors of the house of the first respondent and marked the bags with their own numbers is quite absurd for the very Iporoto villagers testified otherwise and the first respondent was not there to see. After all according C to the testimony of PW2 the wife of the first respondent was

in that house for the night, morning and until 2.00 pm when she left the house not to return again until when the police came and found nobody in that house not even the children and both 2 wives of the first respondent who lived there had abandoned the house, and the first respondent testified not to know where they went. D

The next issue for consideration is the identity of the first respondent. Both the learned Mr Safari and the learned Mr Mkumbe Advocate held the view that the identity was not safe to base a conviction on it since it was dark and only the clothes of the first respondent were identified and they E did not know each other prior to the day of incident. Further, the identifying witness was standing in hiding one hundred paces away and that no identification parade was made to ascertain if the prosecution witnesses fully recognized the first respondent. F

The only witness who identified the first respondent was PW2 Mateso s/o Kailon. He testified that he saw and identified the first respondent by clothes with a shirt which was reddish with blue dots. This piece of evidence came out of re-examination of this witness (PW2) by the public prosecutor Inspector Sangija. Why didn't he bring it up during examination in chief? Even during cross G examination of this witness (PW2) no question was asked on the identity of the first respondent. So, this question of identifying the first respondent was wrongly admitted in the first place for re-examination and must arise out of cross-examined questions -- unless the court permits such H new questions in which case the other side must be given time to cross examine on the new question arising out of the re-examination. The first respondent was not given such chance to cross examine PW2 after he testified on re-examination that he identified the first respondent from his clothes. On this legal ground of improperly admitting evidence of identification of the respondent I

A in re-examination without affording chance to the first respondent cross examine on it coupled up with other valid reasons on identity of first respondent referred to by the trial magistrate and the learned Mr Mkumbe I find that the first respondent was not properly identified at all to have seen the B armed robberies when they were unloading the stolen coffee at his house. Since none of the prosecution witnesses identified anybody at Iporoto village and improperly identified the first respondent at his house the defence of alibi of the first respondent that he slept with his first wife at his Vwawa house remained unrefuted by the prosecution.

C The next issue for determination is whether the first respondent is guilty of receiving stolen property. Why did the robbers bring the coffee to the first respondent's house? Can it be necessarily inferred that he conspired with them to keep it for them for storage purposes in order to share the loot. There are many possibilities to it but three possibilities seem to be cogent to have D been the case. The first possibility is that the first respondent was part and parcel of the armed robbers as their planner or financier etc and that they brought the forty-five bags of stolen coffee as his share of the loot. In this situation he would be a principal offender and guilty of armed robbery as E charged. The other possibility is that the first respondent was not one of the principal offenders and guilty as charged for armed robbery but a mere receiver of the stolen property as a usual customer -- buyer of the stolen coffee or as a usual storer of the stolen coffee

for a fee. In this second possibility he would be a guilty receiver of stolen property for which he could be convicted F as such under s 311(1) of the Penal Code or if the doctrine of recent possession can apply he could be convicted of the principal offence. In this case the doctrine of recent possession would not apply to him for he was not identified to have slept in that house. But, his wife, who was in that house and left the premises at 2.00 pm to hide away from her own house should have been visited G with this offence and so charged. She wasn't even charged for the weighing scales which was found hidden under the bed-mattress in one of the five bedrooms of the first respondent!

H The third possibility, that since the first respondent testified to have mentioned to the police before searching the house that he had forty-seven bags of coffee in his house he too might have been a victim of house breaking and stealing by the same armed robbers as was Iporoto Cooperative Society. The robbers are intelligent people, they might have planned to go and rob the I first respondent just

after robbing Iporoto village. They succeeded in breaking the door, but out of the fear that they would A be caught with the marked forty five coffee bags of Iporoto they dumped all the forty five marked coffee bags of Iporoto, kept for themselves the remaining twenty bags from Iporoto which possibility had no good marks on which marks they to erased on the way from Iporoto to Lungwa village and B added up another loot of forty-seven bags of the first respondent which were unmarked to go away with a total of sixty-seven bags of coffee that night!

With these reasonable possibilities it is not easy to use circumstantial evidence to convict the first C respondent with any criminal offence because circumstantial evidence does not irresistibly lend to only one inference that the first respondent received the forty-five bags with guilty knowledge that it was stolen. Had it been his wife who was at home it would have been a different matter.

As for the weighing scales the Public Prosecutor was very funny to have not included it in the D particulars of the offence although it was not disputed that it belonged to Iporoto Cooperative Society. Nevertheless, it was already returned to the same complainant. The finding of the trial court that the forty-five bags need another civil suit to establish its ownership was erroneous and it is hereby quashed. The same forty-five bags were conclusively established to belong to the E respective peasants of Iporoto Cooperative Society as per Exhibit P 4. The same be returned to them immediately. Otherwise, this appeal is dismissed for the over given reasons. F

A

[zRPz]TRANSCONTINENTAL FORWARDERS LTD v TANGANYIKA MOTORS LTD 1997 TLR 328 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Makame J

B CIVIL APPLICATION 58 OF 1997

17 December 1997

C (An application for striking out of a notice of appeal from the decision of the High Court of Tanzania, Dar es Salaam, Msumi J)

Flynote

D Civil Practice and Procedure - Appeal - Application to strike out Notice of Appeal - Rule 76(2) of Court of Appeal Rules 1979 - To be read with Rule 6(a) in counting days and computing time scales.

Civil Practice and Procedure - Appeal - Rule 83 requiring appellant to institute appeal within 60 days of filing E notice of Appeal - Appellant's application for copy of proceedings not complied with by Registry - Appellant having copied leter to all relevant parties - Rule 83 complied with.

-Headnote

F The applicant applied to have the respondent's Notice of Appeal struck out for offending Rule 76(2) of the Court of Appeal Rules 1979 and for failure to comply with Rule 83(1) of said Rules. The ruling sought to be appealed against had been delivered on 29 May 1997 and the respondent filed his Notice of Appeal on 12 June 1997. It was contended that that was on the 15th day and so out of G time by one day, counting from the day the Ruling was delivered. Respondent contended that the Notice was filed on the 14th day, arguing that the counting of days commenced with the day after the event and excluding the day of the event. It was also contended that the respondent should have instituted his appeal within 60 days of filing the Notice of Appeal in accordance with Rule 83.

H Held:

(i) That Rule 76(2) had to be read with Rule 6 of the Court of Appeal Rules, subrule (a) of which provided that the computation of days from an event was deemed to be exclusive of the day of the event, and that there was no conflict between the two Rules;

I (ii) That the present respondent, who had applied to the Registry for a copy of the proceedings sought to be appealed against and had not been furnished with any, had complied with the Rules by copying his

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letter to the relevant parties - there was no legal provision requiring him to keep reminding A the Registry to forward the proceedings and once Rule 83 was complied with the intending applicant was home and dry.

Case Information

Application dismissed. B

No cases referred to.

Kinguji for the applicant.

Majithia for the respondent.

[zJDz]Judgment

Makame JA:

On behalf of the applicant, Transcontinental Forwarders Ltd, Mr Kinguji learned advocate, has C applied to have the present respondent's Notice of Appeal struck out for offending Rule 76(2) of the Court of Appeal Rules, 1979 and for failure to comply with Rule 83(1) of the said Rules. The respondent's counsel is Mr Majithia learned advocate. D

It is common ground that the ruling by Msumi J (as he then was) sought to be appealed from was delivered on 29 May 1997. It is also agreed by both parties that the respondent filed a Notice of E Appeal on 12 June 1997. Mr Kinguji contends that that was on the fifteenth day and so out of time by one day, counting as he does from the day the Ruling was delivered, and so getting three days in May and twelve days in June, Mr Majithia asserts that he was just in time, having filed on the fourteenth day. He argues that one counts from the morrow of the event, excluding the day of the F event, in the present matter the day the Ruling was delivered, on the 29 May 1997. Rule 76(2) Mr Kinguji is relying on indeed requires that a notice like this one should be lodged within fourteen days. Mr Majithia does not dispute that but contends that Rule 6 of the Court of Appeal G Rules governs the computation of the fourteen days. He cites Rule 6(d) but in my opinion the relevant portion of that Rule, for the purpose of the present issue, is sub-rule (a) which provides:

`a period of days from the happening of an event or the doing of an act or thing shall be deemed to be exclusive of the day in which the event happens or the act or thing is done'. H

I am quite clear in my mind, even without resort to the Law of Limitation Mr Majithia sought to call in aid, that Rule 76(2) and Rule 6 must be read together and that, if that is done, there is no I

A conflict between the two, on a proper construction. The way to go about counting days and computing time scales is spelt out in Rule 6 and that has to be done for `any period of time fixed by these Rules ...', including of course Rule 76. With great respect therefore, I am unable to accept Mr Kinguji's submission that Rule 6 and Rule 76 conflict each other, 29 May 1997 is therefore not to be B counted in this instance in computing the fourteen days.

Mr Kinguji also urged that, in any event, the respondent tarried too long after filing the Notice of Appeal. He should have instituted his appeal within sixty days of filing the Notice, in accordance with C Rule 83. He did not do so, and it is now over six months since the High Court Ruling was delivered. The Notice of Appeal should therefore be deemed to have been withdrawn in terms of Rule 84.

Mr Majithia had a ready answer, and a correct one in my view to this second limb of Mr Kinguji's D argument: Mr Majithia submitted that he applied on 7 June 1997 for a copy of the proceedings etc and to-date he has not been furnished with any. He complied with the Rules by copying his letter to all the relevant parties, including the firm of Patel & Co, advocates to which Mr Kinguji evidently belongs. Mr Kinguji's response to this was that Mr Majithia should not have kept quiet after his 7 E June letter. He should have kept on reminding the Registry. Mr Majithia said in fact he did. I wish to say only that reminding the Registry after applying for a copy of the proceedings etc and copying the request to the other party may indeed be the

practical and realistic thing to do, but it is not a F requirement of the law. Once Rule 83 is complied with the intending applicant is home and dry.
The application before me is devoid of merit. It is accordingly dismissed with costs.
1997 TLR p331
A
[zRPz]PAGI MSEMAKWELI v REPUBLIC 1997 TLR 331 (HC)

Court High Court of Tanzania - Mwanza
Judge Lugakingira J

CRIMINAL APPEAL 134 OF 1996 B
29 December 1997
Flynote
Criminal Procedure - Preliminary hearing in terms of s 192 of Criminal Procedure Act 1985 - Failure to conduct preliminary hearing not fatal to proceedings unless such omission resulting in unfair trial leading to failure of C justice.
Criminal procedure - Withdrawal of charge in District Court in terms of s 98(a) of Criminal Procedure Act - Withdrawal does not operate as bar to subsequent proceedings being preferred on same facts. D
Stock theft - Where accused had offered to refund number of cattle stolen, irrelevant that no consistent description of cattle given or that none were tendered.
-Headnote
The appellant was charged with cattle theft in a District Court. The appellant offered to repay PW 1 E the stolen cattle, after which the charge ws withdrawn under s 98(1) of the Criminal Procedure Act and the appellant was discharged. However, the cattle were seized from PW 1 by one M, claiming that they had been paid to PW 1 unlawfully. This led to PW 1 making a fresh complaint which led to appellant being charged, convicted and sentenced. On appeal, it was contended that F there had been no consistent description of the cattle and none were tendered; that the trrial court had not held a preliminary hearing and that PW 1 had no more complaint after being paid and that the matter was concluded with the withdrawal of the initial charge.
Held: G

(i) That neither the failure to tender the cattle nor any defect in the description of some of them had any significance in the case - the fact that the appellant had repaid the cattle was an admission of theft which the trial magistrate was entitled to take into account, which he did, and in these circumstances the Court does not have to see the stolen item or be particular about its identity; H

(ii) That unless the omission to conduct a preliminary hearing had resulted in an unfair trial leading to a failure of justice, which was not the case in casu, it could not be held to be fatal to a proceeding;

(iii) That the withdrawal of the charge under s 98(a) of the Criminal Procedure Act did not operate as a bar to subsequent proceedings being preferred against the appellant on the same facts - the payment I

1997 TLR p332

A or phoney payment made to PW 1 did not undo a criminal act which was already complete and the offence of cattle theft was not capable of compromise.

Case Information

Appeal dismissed.

B Nasimire for the appellant

Mbago for the republic

[zJDz]Judgment

Lugakingira J:

This is an appeal against conviction and sentence, the appellant having been convicted of cattle C theft at Magu District Court and sentenced to eight years' imprisonment.

On the night of 2 July 1994 twenty-five head of cattle were stolen from the boma of PW1 Edward Tumbo at Shigala village in Magu district. Acting on a tip, he proceeded to the appellant's home at Igwisi village in Urambo district where he arrived ahead of the appellant. A few days later the D appellant arrived with two other men driving thirty head of cattle. PW1 identified three among them as his own and reported to the Sungusungu. The appellant and one of his companions were arrested and subsequently charged with cattle theft at Urambo District Court in Criminal Case No E 48 of 1994. To avoid trouble the appellant offered to repay the stolen cattle and gave PW1 the three he had identified and an extra twenty two at Kaliua Police Station. Following this event the charge was withdrawn under s 98(a) of the Criminal Procedure Act and the accused persons were F discharged. But PW1 was not that lucky. When the cattle arrived at Shigala there shortly appeared a certain Mazoya who seized them all claiming that they had been paid to PW1 unlawfully. Presumably it was from this turn of events that PW1 was prompted to make a fresh complaint at G Magu and this led to the appellant's arrest and his being charged in this proceeding.

The appellant offered no defence at the trial, stating that he had nothing to say, and called two witnesses, none of whom was helpful to him. Mr Nasimire who argued the appeal on behalf of the H appellant took three points: first, that there was no description or consistent description of the cattle and none were tendered; second, that the trial court did not hold a preliminary hearing; third, that PW1 had no more complaint after being paid and the matter was concluded with the withdrawal of the charge at Urambo. He also persistently referred to two accused persons but I I think that arose from a misreading of the record for this proceeding involved the appellant only.

1997 TLR p333

LUGAKINGIRA J

It is true, in the first place, that none of the twenty five cattle were tendered and this apparently A because fate had conspired against PW1. While PW1 believed that Mazoya kept the cattle with the Village Executive Officer (PW2) or the Ward Executive Officer (PW3), these two

denied receiving them. In a word, the cattle had vanished. And there is something interesting about this Mazoya. A B man of the same name from Urambo district stood surety for the appellant at the trial. Assuming, just assuming, that the two Mazoyas were one and the same person, it would appear that the appellant had a hand in the seizure and disappearance of the cattle. As regards description of PW1's original cattle, I am satisfied with the evidence of description adduced by PW1 and his son C PW4, namely, three parallel marks on the cheek and two on the left thigh. And I think neither the failure to tender the cattle nor any defect in the description of three of them had any significance in the circumstances of this case. The appellant had no answer to the prosecution case, and since a D strong case had been made out against him, his conviction was inevitable. In particular the fact that he repaid the cattle was an admission of theft which the trial magistrate was entitled to take into account. He did and said: `It does not appear to me that the accused would have decided to refund the three identified cattle and pay further twenty two head of cattle to PW1 just for fun if he had no E involvement in the incident.' I agree, and in circumstances like these the court does not have to see the stolen item or to be particular about its identity.

It is equally true that the trial court did not conduct a preliminary hearing as required by s 192 of the F Criminal Procedure Act, 1985. Subsection (1) of s 192 is couched in what appears to be mandatory terms and the provision applies equally to accused persons who are represented by advocates as to those who are not so represented. The question now is whether the omission was fatal to the proceeding. I do not think so. The purpose of a preliminary hearing is to identify matters G which are not in dispute so as to cut down on the number of witness and promote a fair and expeditions trial. Unless, therefore, the omission to conduct a preliminary hearing has resulted in an unfair trial leading to a failure of justice, it cannot be held to be fatal to a proceeding. It was not H suggested to me that the appellant had an unfair trial and my examination of the record does not suggest so either. He cross-examined all the prosecution witnesses and at some stage he brought in a defence counsel who subsequently withdrew. He was given the opportunity to defend himself and to call witnesses and elected to make use of the latter. I

A I therefore see no justification for this complaint on procedure and I will say no more about it. It is perhaps not irrelevant to remark also that s 192 has not proved to be as useful as it was expected to be. In subordinate courts one can hardly speak of meaningful preliminary hearings, where any B are held, and in the High Court it is by a large a plea taking exercise.

Finally, it was contended that since PW1 was paid and the charge was withdrawn at Urambo there was no basis for another complaint. I do not agree. The charge at Uramba was withdrawn under s 98(a) of the Criminal Procedure Act and as Mr Mbago who appeared for the Republic rightly pointed C out, the withdrawal did not operate as a bar to subsequent proceedings being preferred against the appellant on the same facts. The fact that PW1 was paid, or tricked into a phoney payment, did not undo a criminal act which was already complete and the offence of

cattle theft is not capable of D compromise. This proceeding was therefore properly preferred against the appellant.
The sentence was above the minimum but I think it was deserved. The trial magistrate cited the fact that cattle theft was alarming in his jurisdiction. I will add that the appellant is a daring character who E deserves no leniency. He could steal cattle at Magu and drive them fearlessly for hundreds of kilometers to Urambo. Such men are dangerous. The entire appeal is thus without substance and it is dismissed.

1996
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1. The Hon. Mr. Justice Hamid M. Hamid Chief Justice
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Cases Reported
1996 TLR p1
A
[zRPz]DAIKIN AIR CONDITIONING (E.A.) LTD v HARVARD UNIVERSITY 1996 TLR 1 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Samatta AgJ
B

CIVIL APPEAL NO 21 of 1976
May 9, 1977
Flynote
Civil Practice and Procedure - No Case to answer - Submission of `No Case to Answer' in civil C cases - Course which trial court should take upon a submission of no case to answer
-Headnote
This appeal arose out of an action on a contract for sale of an air conditioner. At the D close of the plaintiff's case, the defendant submitted that there was no case to answer: that after all the evidence given for the plaintiff, the burden of proof had not shifted to the defendant. The trial court ruled that the submission was not well founded and immediately pronounced judgment for the plaintiff, now respondent. The defendant appealed: E
Held:

(i) The Civil Procedure Code merely provides for the order to be followed in the production of evidence of parties and provides nothing analogous to the law of criminal procedure providing for a course when a submission of no case is made; F

(ii) The practice of the courts in England, approved by the Court of Appeal for Eastern Africa, is that a defendant who makes a submission of `no case to answer' does not lose his right to call witnesses if his submission is not accepted by the court, unless he indicates that he elects to call no witnesses after making the submission;

(iii) The trial court should not proceed to decide the case immediately after the G submission of no case to answer unless it has ascertained that the defendant intends to call no witnesses after the submission of no case to answer;

(iv) In this case, the defendant did not elect not to call any evidence after the submission of no case, and he therefore did not lose his right to call evidence H and denying him that right was a serious error by the trial court.

Case Information
Appeal alowed, decision set aside and trial court to reopen the case and hear the evidence of the defendant/appellant company
Cases referred to: I

1. Parry v Aluminium Corporation Ltd [1940] 162 LT 236.

2. Laurie v Raglan Building Co. Ltd [1941] 3 All ER 332. A

3. Yuill v Yuill [1945] 1 All ER 183.

4. Overseas Touring Company (Road Services) Ltd v African Produce Agency (1949) Ltd and Another [1962] EA 190

5. Storey v Storey [1960] 3 All ER 279

6. Alexander v Rayson [1936] 1 KB 169 B

7. Vye v Vye [1969] 2 All ER 29

8. Simewo Damulira v B. Kassainali Nanji 6 ULR 173

Kesaria, for the appellant

Miss Sheikh, for the respondent

[zJDz]Judgment

Samatta Ag J: C

This appeal, which is from a decision of the resident magistrate's court of Dar es Salaam, raises a question of law of considerable importance. Stated in broad terms the D question is: What course should a court take when at the end of a plaintiff's case it is submitted by or on behalf of the defendant that there is no case to answer?

In view of the nature of the order I propose to make later in this judgment, the facts of the case which have given rise to that question must be stated in a skeletal form. The E appeal arises out of an action on a contract for sale of an air-conditioner. Immediately after the case for the plaintiff university was closed, Mr Kesaria, on behalf of the defendant company, submitted that there was no case to answer. The pith and substance of his contention was that the evidence which was adduced by the plaintiff F university in support of its claim was so unsatisfactory that it had not shifted the burden of proof on to the defendant company. Miss Sheikh, counsel for the plaintiff university, made a reply at the end of which she invited the court to enter judgment for the plaintiff university. Before embarking upon his submission Mr Kesaria made no indication to the court that he was not going to call any evidence. Indeed, at no time during the submission did he make such an election. The court did not make any attempt to ascertain from him as to what action he proposed to take. In a fifteen page reserved ruling the learned resident magistrate reviewed the evidence before her and came to the conclusion that Mr Kesaria's submission was not well founded. In the course of the ruling she said:

`In my view the plaintiff's evidence has shifted the burden on to the defendant to disprove by a reasonable explanation how they arrived at a decision that they are excluded from liability. Again and again it

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has been stressed by the courts that where a party relies on a some (sic) assertion and of which he A has special knowledge, he must explain how he says he excludes liability from himself.'

Having said that, the learned resident magistrate went on to point out what, in her opinion, the defendant company had to prove to avoid liability. After holding that the B defendant company had failed to discharge the onus, she concluded thus:

`I therefore find the suit in favour of the plaintiff with all costs and interest.' C

It is that decision which the appellant company appeals against to this court.

Mr Kesaria sought to impugn the decision on grounds of merits. In my view, however, those grounds can properly be examined only if this court is of the view that the learned D resident magistrate directed herself properly in law in delivering judgment before hearing the evidence of the appellant company. To that issue I now devote my attention.

The Civil Procedure Code 1966, does not shed even a wavering light as to what answer E should be given to the question I posed at the beginning of this judgment. There is no provision in the Code which is analogous to that of s 205 or of s 278(1) of the Criminal Procedure Code. Order 18, Rule 2 merely makes provision for the order which ought to be followed in the production of the evidence of parties. It is as silent as a graveyard as F to what course a court should take when a submission of no case is made. What, then, should a judge or magistrate do when such a submission is made? Although that is not an unimportant question, strangely enough, as far as the law reports go, no decision in East Africa throws any light upon it. The problem has, however, received G attention in a number of modern English cases which I now proceed to examine.

The first case in point of date is Parry v Aluminium Corporation Ltd (1). The salient facts of the case are lucidly and accurately given in the headnote as follows: H

`An employee in a factory, whose hand was injured in a cutting machine, brought an action against his employers alleging negligence and also breach of statutory duty in that the machine was a dangerous machine and was not securely fenced. At the close of the plaintiff's case, the defendant's I Counsel submitted that there was no case to answer on the ground that, on his own showing, the plaintiff

had been guilty of contributory negligence. The trial judge upheld the defendants' submission and A gave judgment for the defendants.'

The plaintiff appealed to the Court of Appeal. It was held that the learned Trial Judge had misdirected himself in finding that the plaintiff had been guilty of contributory negligence. In the course of his judgment, Goddard LJ said at 237: B

`I think that in all these cases of negligence, if a judge is asked to rule at the end of the plaintiff's case that the plaintiff has made out no case, it is most desirable that he should adopt the practice, laid C down a great many years ago in this court, when Mathew, LJ was sitting here, and since adopted by Horridge, J who was a judge of the greatest experience in these matters, that the judge should say to counsel who is submitting no case: "Do you elect to call no evidence?" If counsel is content to leave D the case where it is, then the judge can rule. But it is very undesirable for the judge to give a ruling in a case which may afterwards be upset by the Court of Appeal, when the defendant may be in a position to say: "I must have a new trial, because my evidence was never heard." I think in negligence cases the right course is for the judge to refuse to rule unless counsel says that he is going to call no evidence. Horridge, J used to say, if he was sitting with a jury: "Are you going to call E any evidence; or are you going to let

the case stay where it is?" If counsel said: "I am not going to say whether I am going to call any evidence," then he would say: "You must call your evidence," and then I will rule whether or not, on the whole of the case, there is a case to go to the jury or not." If a judge is sitting without a jury, he does not have to say that, because he can say he will decide at the F end of the case.'
The learned Lord Justice continued:
G `I think that that is the proper course to take in these cases. I do not say that it is the right course in every kind of action, because in defamation cases, for instance, I believe there is authority for saying that, if it is submitted that there is no evidence of malice, the judge is bound to rule. H

Also in slander cases the judge must rule if the submission is made that the words are not actionable without proof of special damage and no special damage is alleged. But I think that the old practice, which I believe most judges adopted, is a sound practice, because it does prevent the chance of a defendant, unsuccessful in this court, asking that the case should go back for a new trial I to have his evidence heard.'
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That dictum was approved by the Court of Appeal a year later in the case of Laurie v A Raglan Building Co Ltd (2). That case involved a claim for damages arising out of alleged negligence. At the end of the plaintiff's case the Trial Judge ruled in favour of the submission of counsel for the defendants that no case had been made out for the defendants to meet. In the course of his judgment, with which Goddard and Du Parcq B LJJ agreed, Lord Green MR said at 337:

`The course which the trial took was this. After the evidence for the plaintiff had been concluded, on the question of liability counsel for the defendants submitted that there was no case. It is unfortunate, C I think, that the judge did not follow the practice which ought to be followed in such cases, as has been quite clearly laid down in this court-namely, the practice of refusing to rule on the submission unless counsel for the defendants says that he is going to call no evidence. That must be regarded as the proper practice to follow, and it is to be found very lucidly set out, if I may say so, in the D judgment of Goddard, LJ in Parry v Aluminium Corporation Ltd. However, I do not wish it to be thought that there is any particular magic about that question being asked, because it seems to me that counsel can make it perfectly clear, by words which he uses and by the way in which he acts, that he E does not intend to call any evidence, and, that being so, he must be taken to have given a negative answer to the question which the judge might otherwise have put to him.'
The next case I wish to refer to is Yuill v Yuill (3) at 185. The principal facts of the case F are clearly and, I think, correctly stated in the headnote to the case, which, with gratitude, I proceed to read:

`The petitioner husband sought the dissolution of his marriage with the respondent on the ground of adultery.... When the case for the petitioner was closed, counsel for the respondent made a G submission that there was no case to answer. The Judge ruled against the submission without, however, having called upon counsel for the respondent to elect whether to

call evidence or rely on his submission, and heard the evidence of the respondent and the co-respondent. H

He came to the conclusion that upon the petitioner's evidence he ought not to draw the inference that adultery had taken place on August 3, and accepted the evidence of the respondent and co-respondent basing his belief that they were substantially truthful upon "a careful observation of their demeanour" and the opinion which he had formed of their "type of characteristics". He, therefore I dismissed the petition.'

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On appeal it was contended on behalf of the petitioner that since the submission of no A case to answer had been rejected the petitioner was entitled to a decree. Delivering his judgment, with which the other members of the court-MacKinnon and Du Parcq LJJ agreed, Lord Greene MR said at 184--185: B

`Before I come to the principal question in this case it will be convenient to dispose of two arguments submitted by counsel for the appellant. The first is as follows. In the court below, when the case for the appellant was closed, counsel for the respondent made a submission of no case-not, as I C understand, in the sense that the evidence led by the appellant was insufficient in law to support a decision in his favour-but by way of an invitation to the judge to dismiss the petition without calling on the respondent.

Wallington, J, did not at the time appreciate the nature of counsel's submission: in particular it did not D occur to him that in taking the course which he did the respondent's counsel was in any way intending to call no evidence. In the result he did not follow the practice which, we are informed, has been adopted in the Divorce Division of calling upon the respondent's counsel to elect whether to call evidence or to proceed with his submission. The submission having failed, counsel for the appellant E contended before Wallington, J, that the respondent's counsel, by making the submission, had lost his right to call evidence and that the judge's ruling necessarily meant that the appellant was entitled to a decree. This contention was rejected by Wallington, J. It was, however, repeated before us and we were invited to say that the appellant ought in the circumstances to have been granted a decree F as a matter of course and to allow the appeal accordingly. Alternatively, it was said that if the mere fact that the judge had ruled against the submission of no case was insufficient, we ought in considering the facts to disregard the evidence led by the respondent.

This argument is, in our opinion, based on a misapprehension of the meaning of the practice which G in appropriate cases is followed where counsel for a defendant desires to make a submission of no case. The practice is discussed in Alexander v Rayson, Parry v The Aluminium Corporation, Ltd, and Laurie v Raglan Building Co, Ltd, and I will assume that it is the proper practice to follow in the Divorce Division. It does not mean that counsel by submitting no case ipso facto loses his right to call H evidence if his submission fails.

He only loses that right if he definitely elects to call no evidence. He may make this election expressly or (as in Laurie v Raglan Building Co, Ltd) impliedly. The practice which has

been laid down amounts I to no more than a direction to the judge to put counsel who desires to make a submission of no case to his election and to refuse

to rule unless counsel elects to call no evidence. Where counsel has so elected he is, of course; A bound: but if for any reason, be it through oversight or (as here) through a misapprehension as to the nature of counsel's argument, the judge does not put counsel to his election and no election in fact takes place, counsel is entitled to call his evidence just as much as if he had never made the submission. This argument, therefore, fails.' B

The rule that a party who elects to call no evidence in reliance of his submission of no case loses the right to call his evidence if the submission fails was approved by the Court of Appeal for Eastern Africa in Overseas Touring Company (Road Services) C Limited v African Produce Agency (1949) Limited and Another (4). At the trial in that case counsel for the second defendant, Mr Wilkinson, went ahead with his submission that the plaintiff had not made out a case for his client to meet despite the fact that the learned Trial Judge had warned him that if he continued with the submission he was not D going to be allowed to call evidence. In the end the learned judge refused to allow him to call evidence. Mr Wilkinson's criticism of the learned judge's decision of refusing to allow him to call evidence was rejected by the Court of Appeal. Sir Kenneth O'Connor P said at 193: E

`On appeal, Mr Wilkinson, for the appellant, argued that the learned judge had been wrong in refusing to allow him to call evidence if he continued with his submission of no case at the close of the plaintiff's evidence and his submission failed. I think, however, that the learned Judge was justified in F taking that course: Yuill v Yuill at 18.'

Unfortunately it was not necessary in that case for the Court of Appeal to examine the entire practice relating to a submission of no case. It therefore confined itself to the G submission made before it.

The next English case in which the practice was examined by the Court of Appeal is Storey v Storey (5). Delivering the judgment of the court which consisted of himself, Hodson and Harman LJJ, Ormerod LJ referred to the cases of Alexander v Rayson (6), Parry v Aluminium Corporation Ltd (1), and Lurie v Raglan Building Co Ltd (2) and then H continued at 281:

`The combined effect of these three cases appears to be that the proper procedure if a submission of no case is made by the defendant in a negligence case is to require him to elect whether to stand on I his submission, and if he does so there cannot thereafter be a new trial.'

The learned Lord Justice went on to quote a passage from the judgment of Lord Greene A MR in Yuill v Yuill (3) and then continued at 282:

`In Wilson v Wilson [1958] 3 All ER 195 Karminski, J, held that it was the established practice of the Divorce Division, other than in exceptional circumstances, that a party making such a submission B must be put to his election.

There are, however, two sets of circumstances under which a defendant may submit that he has no case to answer. In the one case there may be a submission that, accepting the plaintiff's evidence at C its face value, no case has been established in law, and in the other that the evidence led for the plaintiff is so unsatisfactory or unreliable that the court should find that the burden has not been discharged. Laurie v Raglan Building Co Ltd was a clear case of the former, Yuill v Yuill of the latter. In Yuill v Yuill, Lord Green MR, said:

D "In the court below, when the case for the appellant was closed, counsel for the respondent made a submission. It was intended to be a submission of no case-not, as I understand, in the sense that the evidence led by the appellant was insufficient in law to support a decision in his favour-but by way of an invitation to the judge to dismiss the petition without calling on the respondent." E

There can, we think, be no doubt that in the former type of submission a defendant is bound by his election, and there can be no new trial. This rule, in our opinion, however, does not of necessity apply to the second type of case where the judge is invited to dismiss the case because of the unsatisfactory or unreliable nature of the evidence.' F

Another English case which I think I must refer to is Vye v Vye (7). It is not necessary for the present purposes to state the facts of that case. It is the illuminating observations in G the judgment of Sir Jocelyn Simon P, which I think render some guidance as to what the solution of the problem I am confronted with in the instant case ought to be. The learned President said at 34:

`Sometimes, at the end of a plaintiff's, or petitioner's, or complainant's case, but not before, the case may be stopped, either on a submission that there is no case to answer, or on the proper motion of H the court itself; Ramsden v Ramsden, which Baker J, has cited.

Though such action may be taken, it is rarely satisfactory to come to a decision in a matrimonial cause without hearing both sides: see the passage in Ramsden v Ramsden [1954] 2 All ER at p 624 I cited in Storey v Storey, and compare also the Practice Note [1962] 1 All ER

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448. It is, of course, always open to a defendant or respondent to submit that there is no case to A answer. That is a right that cannot be withheld. He can do that at the end of the complainant's case, but not before. If it is done, it should be made perfectly plain what is the type of the submission. I cite again from Storey v Storey:

"There are, however, two sets of circumstances under which a defendant may submit that he has no B case to answer. In the one case there may be a submission that, accepting the plaintiff's evidence at its face value, no case has been established in law, and in the other that the evidence led for the plaintiff is so unsatisfactory or unreliable that the court should find that the burden of proof has not been discharged." C

It should be made perfectly plain which of those two types of submission is being put forward. That is not to say that they are mutually exclusive. They can, of course be put forward in the alternative; but the court should be perfectly clear on what grounds it is ruling, if it does

so rule, that there is no case to answer: see, for example, Disher v Disher [1963] 3 All ER 933; [1965] at 31.' D

Although the problem which the High Court of Uganda was confronted with thirty years ago in Simewo Damulira v B Kassainali Nanji (8) is not identical with the one I am confronted with in the case now under consideration, the observations of Edwards CJ E (as he then was) in that case are, I venture to think, fairly instructive. The facts of that case are succinctly stated in the headnote as follows: `After the appellant (plaintiff) had given evidence the magistrate noted on the file: Close of plaintiff's case, I don't wish to F hear the defendant', and then proceeded to deliver judgment, in which he said `The evidence of the plaintiff leaves me far from satisfied that his claim is genuine'. After holding that there was no warrant in Ord 16, Rule 2 of the Civil Procedure Rules (of Uganda) for the course the trial magistrate took and that resort could not be had to the G practice observed by the High Court in England in Civil cases tried by a jury, the learned Chief Justice said at 174--175:

`I wish to make a clear distinction between the facts of the instant case and a trial where, at the end of the plaintiff's case, it transpires that the plaintiff, even if believed, has made out no case in law H entitling him to any remedy. Suppose, for example, a plaintiff sued for Shs 1,000/= damages on the ground that the defendant had merely been rude to him but did not suggest that he had libeled or slandered him or done or said anything which would, in law, entitle him to recover damages as I compensation or solatium, then in such a case, in spite of the wording of Order 16 rule 2, a Magistrate might

well be entitled to stop the case and dismiss the plaintiff's action. As to this, however, I express no A definite opinion. Such a case must await decision when it arises. I am fortified in reaching the conclusion at which I have arrived by a perusal of the words of Lord Justice Romer (as he then was) in the case of Alexander v Rayson, Vol 52, Times LR, page 131 at page 133: B

"Where an action is being heard by a jury it is, of course, quite usual and often very convenient, at the end of the case of the plaintiff, or of the party having the onus of proof, as the defendant here, for the opposing party to ask for the ruling of the Judge whether there is any case to go to the jury, who are C the only judges of fact. It also seems to be not unusual in the King's Bench Division to ask for a similar ruling in actions tried by a Judge alone. We think however, that this is highly inconvenient. For the Judge in such cases is also the judge of fact, and we cannot think it right that the judge of fact should be asked to express any opinion on the evidence until the evidence is completed. Certainly no D one would ever dream of asking a jury at the end of a plaintiff's case to say what verdict they would be prepared to give if the defendant called no evidence, and we fail to see why a Judge should be asked such a question in cases where he, and not a jury, is the Judge who has to determine the facts. In such cases we venture to think that the responsibility for not calling rebutting evidence should E be on the other party's counsel and on no one else."

In my view the same principles must apply where a Judge or Magistrate, of his own motion, in a civil case, feels inclined, after having heard only the evidence of the party on whom

is the burden of proof, to dismiss the action. That really seems to be conclusive of the matter now before me. A Judge or F Magistrate in Uganda trying a civil case is in the same position as a Judge of the King's Bench Division in England in an action tried by him sitting alone.'

Having given the matter anxious and, I hope, careful consideration, I readily admit the G justice of the principles underlying the practice observed by and before Her Majesty's High Court of Justice in England in cases tried by a judge alone. In my view that practice is not only founded upon common sense, but its basis is also to be found in the laudable concept of fair play. It does not only aim at justice being done, but it also aims, I venture to think, at justice H being seen to be done. These are noble aims which any system of justice worth a name must be guided by. I am unaware of the existence of any local conditions that would warrant the rejection or modification of that practice in the administration of justice in our I country. On the contrary, I think that the practice makes a powerful and reliable ally of the substantive law,

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both statutory and unwritten, which our courts are enjoined to apply in the exercise of A their respective civil jurisdictions. With unfeigned respect to the learned resident magistrate, I think she strayed into a grave error in arriving at a final opinion on the case at a stage of the trial when all that she was required to do was to express her opinion as to whether there was a case for the defendant company to meet. At no time before or B during his submission did Mr Kesaria expressly or impliedly elect not to call any evidence. If logic is to prevail, he should not, therefore, have been taken to have lost his right to call evidence. The denial of that right was a serious error. It vitiates the learned resident magistrate's decision. that being so, I am constrained to allow the appeal. C Unfortunately, I cannot order a retrial before another magistrate as I am informed by Miss Sheikh that the key witness for the respondent university has left the country for good and cannot be obtained without a collosal amount of expense. As the outcome of the case may to a large extent depend on credibility of witnesses, it seems unlikely that the D invocation of the provisions of s 35(1) of the Evidence Act 1967, would adequately protect the interests of the respondent university. My regret for not being able to order a retrial before another magistrate is, however, tempered by the reflection that Mr Kesaria E is quite willing to go back before the learned trial magistrate and present the case for his client before her.

For the reasons I have endeavoured to give, I allow the appeal and set aside the lower court's decision.

The learned trial magistrate is directed to re-open the case, hear the evidence of the F defendant company and finally determine the case in accordance with the applicable law.

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[zRPz]HATIBU GANDHI and OTHERS v REPUBLIC 1996 TLR 12 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Nyalali CJ, Makame JJA and Kisanga JJA

B

CRIMINAL APPEAL NO 3 OF 1986

14 December, 1987

(Appeal from the convictions and sentences of the High Court of Tanzania, Dar es Salaam, Mnzavas J.K.)

Flynote

C Criminal Practice and Procedure - Criminal Procedure Code replaced by Criminal Procedure Act, 1985 - Effect on form of laying a treason charge.

Criminal Practice and Procedure - Section 12 of the Evidence Act, 1967 - Evidence to be adduced D to bring the Section into operation when treasonable conspiracy alleged.

Criminal Practice and Procedure - Whether a trial judge's summing up of the case to assessors is mandatory or discretionary - Section 283(1) of the Criminal Procedure Code (now Section 298(1) of the Criminal Procedure Act, 1985). E

Criminal Practice and Procedure - Trial judge's summing up of the case to assessors - Extent of particularity required.

Criminal Practice and Procedure - Assessors' opinions - Duty of trial judge to take such opinions F before giving judgment - Section 248 of the Criminal Procedure Code (now Section 265 of the Criminal Procedure Act, 1985).

Evidence - Extra-judicial statements - Formalities required for confessions - Magistrates' Courts Act, 1963 - Section 56(2) - Empowers Chief Justice to issue instructions - Such Chief Justice's G Instructions applying to magistrates also - Whether magistrates' failure to comply fully with Chief Justice's Instructions rendering extra-judicial statements inadmissible.

Evidence - Retracted confession - Value and weight to be attached to retracted uncorroborated confessions.

H Evidence - Retracted confession - Whether capable of corroborating other evidence against the confessor.

Criminal Practice and Procedure - Trial within the trial - Scope of - Findings on the general character of an accused falling within the scope of the main trial - Whether such findings expressed after trial within the trial having the effect of vitiating a fair trial. I

Evidence - Incriminating statements made at trial within the trial -

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Admissibility at the main trial - Such statements can be used against the maker at the main trial.

A

Criminal Law - Section 39(2)(a) of the Penal Code - Charge of treason - What constitutes.

Criminal Practice and Procedure - Sentencing - Interference with a trial court's sentencing on B appeal - Principles applicable.

-Headnote

The First Appellant, together with the Second to Ninth Appellants, were convicted in the High Court of Tanzania at Dar-es-Salaam on three counts of treason, contravening Section 39(2)(a) of the Penal Code. Each was then sentenced to life imprisonment. In C an appeal both against the convictions and sentences, and based on seventy-three substantive grounds of appeal, the Court

of Appeal of Tanzania (per Nyalali, CJ) upheld the convictions and sentences in each case and dismissed the appeals in their entirety.

Held: D

(i) The effect on the laying of charges brought about by the enactment of the Criminal Procedure Act, 1985, is that the courts of this country are no longer bound to follow English practice and procedure in a criminal trial.

(ii) The word `may' in Section 283(1) of the Criminal Procedure Code (now Section E 298(1) of the Criminal Procedure Act, 1985) is unambiguous and crystal clear; and thus the trial judge's summing of the case to his assessors is not mandatory, but is prudent as a matter of practice.

(iii) It is sufficient for the trial Judge to state the substance or gist of the case on both sides to enable the assessors' opinions to be formed on the case in F general or on any particular point required.

(iv) Section 248 of the Criminal Procedure Code (now Section 265 of the Criminal Procedure Act, 1985) obliges the trial judge, by necessary implication, to take the assessors' opinions before giving judgment.

(v) In deciding whether a magistrate's failure to comply fully with the Chief Justice's G Instructions renders extra-judicial statements inadmissible, the question is whether apart from any such non-compliance, other circumstances suggest that the statements were made involuntarily.

(vi) A conviction on a retracted uncorroborated confession is competent if the court warns itself of the danger of acting upon such a confession and is fully satisfied that such confession cannot but be true. H

(vii) A retracted uncorroborated confession, if truthful, can corroborate other evidence against the confessor.

(viii) Incriminating statements made at a trial within the trial are admissible at the main trial and can be used against their maker at the main trial.

(ix) A conviction on a charge of treason requires proof of an overt act as well as the I perpetrator's appropriate intention and his allegiance to the Republic at the material time.

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A (x) An appellate court will not interfere with the sentence imposed by the trial court unless such sentence is manifestly excessive.

(xi) The appeals are dismissed in their entirety.

Case Information

Cases referred to: B

1. Mattaka v R. EA 495
2. Andrea v R. [1958] EA 685
3. Milligwa v R. [1953] 20 EA 255
4. Nayinda s/o Batungwa v R. [1959] EA 691
5. Ezera Kyabanamaize and Another v R. [1962] EA 309 C
6. Tuwamoi v Uganda [1967] EA 84

7. Lusabanya Styantemi v Republic [1980] TLR 276
8. Wong Kam Ming v The Queen [1979] 1 All ER 939
9. R v Hammond [1941] 3 All ER 318
10. D.P.P. v Peter Rowland Vogel [1987] TLR 4 D
11. Palalar Melaram Bassan and Wathiobia s/o Kyambuu v R. [1961] EA 521

Criminal appeal. The facts appear from the judgment of Nyalali, CJ.

Lakha, for the 1st, 2nd and 3rd appellants.

Kashumbugu, for the 4th, 5th and 6th appellants.

Jadeja, for the 7th and 9th appellants. E

Mbuya, for the 8th appellant.

Mwanyika and Massaba, (assisted by Miss Korosso), appeared for the Respondent.

[zJDz]Judgment

Nyalali CJ: The following matters are not seriously disputed between the parties in this F case. The nine appellants, namely, Hatibu Gandhi alias Captain Hatty Macghee; Captain Christopher Kadego alias Chriss; Lieutenant Eugene Maganga; Captain Metusela Suleiman Kamando; Captain Vitalis Gabriel Mpunda; Captain Rodrick Roushan Roberts; Captain Dietrich Oswald Mbogoro; Captain Zacharia Hanspoppe and P3794 G Lieutenant Badru Rwechungura Kajaja, hereinafter called first appellant, second appellant, third appellant, fourth appellant, fifth appellant, sixth appellant, seventh appellant, eighth appellant and ninth appellant respectively, were jointly with ten others on three counts of treason, contrary to s 39(2)(a) of the Penal Code, and with one H alternative count of misprision of treason, contrary to s 41(b) of the Penal Code.

At the close of the prosecution case five of the accused persons were found to have no case to answer and were accordingly acquitted. The trial then proceeded with the remaining fourteen accused. I

The trial of this case took about a year to conclude. The prosecu-

tion called a total of ninety-seven prosecution witnesses, whereas the defence called A forty-three witnesses including the accused persons, all of whom with the exception of the eighth appellant, elected to give unsworn statements in their defence. The first appellant elected to say nothing but called one defence witness. At the end of the long B trial, only the present nine appellants were convicted on the three counts of treason in respect of certain specified overt acts and were each sentenced to imprisonment for life.

The remaining five accused persons were acquitted both on the substantive charges and the one in the alternative. As to the appellants who were convicted on the C substantive counts, the learned Jaji Kiongozi properly did not make a finding in respect of the alternative count of misprision.

For purposes of this appeal, the proceedings were compiled in fifteen volumes of stenographers' records, and four volumes of the Trial Judge's notes. It was a job well D done both by the learned trial Jaji Kiongozi and the court stenographers led by Mr John Luanda from the Court of Appeal Registry.

The nine appellants were aggrieved by the convictions and sentences, hence this appeal to this Court. Mr Lakha, learned advocate, appeared for the first, second and third E appellants; whereas Mr Kashumbugu, learned advocate appeared for the fourth, fifth and sixth appellants. Mr Jedeja, learned advocate, represented the seventh and ninth appellants; whereas Mr Mbuya, learned advocate, appeared for the eighth appellant. Messrs Mwanyika and Massaba, Principal State Attorneys, assisted by Miss Korosso, F State Attorney, appeared for the Republic. A total of seventy-three substantive grounds of appeal were submitted against the judgment of the High Court. The hearing of the appeal took seventeen days and at the end of the appeal we reserved our considered judgment until now.

For reasons that will become apparent in this judgment, this case has an economic G background. The global economic crisis which still exists in the world today started many years ago. As it is well known, there is hardly any country in the world which has not, in one way or the other, suffered from this adverse global economic effect. But the year 1982 was a particularly bad one for Tanzania. Most people in the country were H affected by the economic situation. Faced with such economic adversity, there were those who reacted constructively, and others who reacted destructively. By early 1983 the Government had enacted a draconian legislation known as The Economic Sabotage (Special Provisions) Act 1983, to combat a tide of economic crimes. I

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A At the time when the country was facing this economic crisis in 1982, the second, third, fourth, fifth, sixth, seventh, eighth and ninth appellants held military commissions in the Tanzania Peoples' Defence Forces, that is TPDF. At the time material to this case in 1982, the second appellant was stationed in a tank unit in Dar es Salaam, whereas the B third appellant was pursuing higher studies at Dar es Salaam University. He was in his final year reading for a BA degree in Political Science. The fourth appellant was a pilot in the TPDF Airwing at Ukonga in Dar es Salaam, and so were the fifth and sixth appellants. As far as the seventh appellant is concerned, he was in the Air Defence C Regiment and was in charge of Battery No 2 in Dar es Salaam; similarly, the eighth appellant was in the same regiment as Chief Engineer. As for the ninth appellant, he happened to be stationed in a military unit at Nachingwea, but was in Dar es Salaam in December 1982. All appellants are Tanzanians by nationality.

D Thereafter, during the same month of December 1982, the first appellant and the fourth appellant visited Zanzibar on several occasions. At about this time the first appellant received a number of guests at house No 80B Drive-In. He, and a number of friends, also used to visit a house at Kinondoni Mkwajuni, that is, house No 65--32P E along Livingstone Street in Dar es Salaam, where he and his friends used to have lunch and indulge in heavy drinking. That house belonged to PW38, that is, Zahara Abdulla Sengumba, who rented it from the National Housing Corporation. She was in some way related to the first appellant. She had agreed to allow the first appellant and his friends to F have their lunch there as and when they wished. For most of the time, material to this case, the first appellant travelled in the city by taxi which he hired from PW1, that is, Abdallah Mhando. Towards the end of December 1982, the first appellant hired

another taxi driven by PW45, that is, Nassor Sultan Seif, apparently because PW1 had travelled G outside the country to Harare in Zimbabwe.

During this time, Pius Lugangira alias Father Tom was not sitting idly by at Motel Agip, but made a number of contacts in the city, including a visit to house No 1127 Chole H Road at Masaki in Dar es Salaam. That house belonged to one Christopher Paschal Ngaiza, who was one of the persons jointly charged with the appellants but was acquitted after a full trial. This Christopher Paschal Ngaiza happened to be a relative of the said Pius Lugangira alias Father Tom. Towards the end of December 1982, the said I Pius Lugangira invited a number of people to a meeting at house No 1127 along Chole Road at Masaki in Dar es Salaam on two con-

secutive days. The meeting was claimed to be a business meeting and was held while A the owner of the house was away from Dar es Salaam.

On 6 January 1983 events took a dramatic and serious turn. A decision by the authorities was made to launch a joint exercise of the Military, Police and the National Security Department to arrest a number of persons suspected of plotting to overthrow B the Government of the United Republic and kill its President. In the course of that exercise, Mohamed Tamim alias Martin Tamim was shot dead by a national security man as he attempted to avoid arrest at Kinondoni Mkwajuni. Subsequently, various persons, both military and civilian were arrested in the joint exercise. The first and C seventh appellants were arrested on 7 January 1983 at Kinondoni Mkwajuni; whereas the fourth appellant was arrested the following day on 8 January 1983, also in the area of Kinondoni Mkwajuni. The fifth, sixth and eighth appellants were arrested in their homes during the night of 7/8 January 1983. The ninth appellant was also arrested in Dar es D Salaam about that time in January 1983. A search for the second and third appellants was made but neither of them was to be seen anywhere in the country until they were retrieved from Kenya in October 1983. Subsequent to the arrests, the first, fourth, fifth, sixth, seventh and eighth appellants, while in police custody, were interrogated by the E police. Later the first, fifth, sixth and seventh appellants were taken before magistrates to whom they made extra-judicial statements. There was, however, a delay in instituting prosecution in a court of law apparently because a number of important suspects F managed to escape from Keko Remand Prison. The case got off the ground after some of the escapees had been retrieved from Kenya sometime in October 1983. That is as far as the matters which are not seriously in dispute in this case are concerned.

We now turn to matters that are seriously in dispute in this case. It is the prosecution G case that before the first appellant and the late Mohamed Tamimu alias Martin Tamimu, as well as Pius Lugangira alias Father Tom entered the country from abroad between mid-November 1982 and mid-December 1982, they were involved in conceiving and hatching up a plot to overthrow the Government of the United Republic, kill its President H and install their own form of Government upon the belief that the Government then in existence had mismanaged the national economy. They hoped that their own government would provide a cure to the

economic problems facing the country. The plot so conceived and hatched up required participation of some elements of the TPDF as I well as some civilians.
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A The conspiracy to kill the President of the United Republic constituted the first overt act charged in Count 1. The thrust of the conspiracy which was directed at deposing the President from his lawful office, constituted another separate overt act as stated in Count 2, whereas that part of the conspiracy which was derived at overthrowing the B lawful Government of the United Republic constituted another overt act stated in Count 3. It is part of the prosecution case that the first appellant assisted or facilitated the entry of the late Mohamed Tamimu alias Martin Tamimu from Kenya to Dar es Salaam. This conduct is listed as the second overt act in Count 3. C
Furthermore, the prosecution contends that after the trio had entered the country, they began to approach and recruit persons into their plot. A number of those approached and recruited were elements in the TPDF. Some of them succumbed to the plot, but D there were others who refused outright; whereas some pretended to cooperate with the plotters while reporting the matter to the authorities. Among those who were successfully recruited were the second, third, fourth, fifth, sixth, seventh, eighth and ninth appellants. PW46, that is, Captain Mohamed Suleiman Mape of the Navy Unit E refused outright. However, he did not report the matter to the authorities. PW11, that is, Captain Albert Ballati of the Commando Unit pretended to go along while reporting to the authorities. This aspect of recruitment of Captain Ballati constituted the seventh overt act charged in Count 3. The successful recruitment of the fifth appellant and the seventh F appellant constituted overt acts numbers 8 and 9 charged in Count 3. PW8, that is, Staff Sergeant Boniface Temu was another military officer who pretended to go along while reporting to the authorities. His recruitment, into the plot constituted the fourteenth overt act charged in Count 3.
G It is part of the prosecution case that the plotters managed to hold a number of conspiratorial meetings to work out the modalities and details of their plot. Some of these took place at house No 80B Drive-In, while others took place at house No 1127 along Chole Road at Masaki, and at a house at Kinondoni Makaburini. The operations H plan of the coup plot was finalised at the last two meetings held at the Chole Road house and a house at Kinondoni Makaburini, between the end of December 1982 and the beginning at January 1983.
The prosecution further contends that some of the conspirators either deliberately or I unwittingly let the cat out of the bag, so to speak, by making incriminating declarations or remarks to friends
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and acquaintances in unguarded moments. Instances of such behaviour were the A disclosures made by the first appellant to PW1, that is, Abdallah Mhando in the course of the first appellant being driven in PW1's taxi in the city. Similarly, the second applicant revealed the lot to PW2, that is, Iddi Mushi Stambuli when the two met in a bar house in B Arusha about the middle of

December 1982. Also, the ninth appellant revealed the plot to PW3, that is Lieutenant Augustine Pancras Ndejembi when the two met at Lugalo Barracks early in January 1983. The incriminating declarations or remarks made by the second appellant constituted overt act number 10 in Count 3; whereas those by the ninth C appellant constituted overt act number 12 in Count 3.

Finally, it is the prosecution case that the conspirators had reached the stage of making preparations to execute their coup plot on 8 January 1983. Towards that end, the eighth D appellant deliberately mistuned or mishandled Battery No 2 on 6 January 1983, and the seventh appellant instructed PW8, that is, Staff Sergeant Boniface Temu to interfere with Battery No 2 on the eve of the plot, that is, on 7 January 1983. On that same critical day, the first appellant purchased a number of batteries for use in walkie talkie radios E which were intended for monitoring the coup operations as they were meant to occur on 8 January 1983. In order to leave nothing to chance, the first appellant and the late Mohamed Tamimu alias Martin Tamimu sought assistance from the supernatural world by consulting witchdoctors and requesting them for charms to immunise them against F harm by bullets. The conduct of the eighth appellant in mishandling Battery number 2 on 6 January 1983 constituted overt act number 20 in Count 3; whereas that of the seventh appellant of instructing PW8 to interfere with the Battery constituted overt act number 6 of the same Count 3. And the consultations with the witchdoctors constituted overt act G number 6 of the same Count 3.

The defence side, both at the trial and in this appeal, shares one main position. It is a common contention of the defence side that the prosecution case is a fiction, concocted jointly by the police and the National Security Department of the Government to cover up H the death of Mohamed Tamimu alias Martin Tamimu, which occurred on 6 January 1983. Apart from this common position, each appellant has a unique stand against the prosecution case.

We start with the first appellant. His defence as laid down in cross-examination of witnesses for the prosecution and through his defence witness constitutes a general I denial of the prosecution

case and an assertion that the material prosecution witnesses are either liars or A unreliable. There is also an alibi to show that between 31 December 1982 and 5 January 1983 the first appellant was away from Dar es Salaam and had gone to pay condolences to his bereaved mother at Mkaramo in Tanga. He denies travelling to Zanzibar to recruit Albert Ballati. As to the extra-judicial confession which he made B before the magistrate, he claims that it was extorted from him by the police. Finally, he contends that he was denied a fair trial when the learned Jaji Kiongozi made remarks in his ruling at the end of the trial-within-a-trial, concerning the admissibility of the first appellant's extra-judicial confession to the effect that the first appellant was a person C who could choose to tell any lie in order to suit himself. That remark drove the first appellant to choose not to say anything in defence in the main trial.

The second appellant's defence, like that of the first appellant, disclosed through D cross-examination of witnesses for the prosecution as well as in the second appellant's unsworn

statement from the dock, consists of a general denial of the prosecution case and an assertion that the material prosecution witnesses are either liars or unreliable. There is also an alibi to the effect that during the month of December, the second appellant never visited Arusha as claimed by PW2. E

The third appellant's defence, like that of the first and the second appellants, disclosed through cross-examination of witnesses for the prosecution and in the third appellant's unsworn statement from the dock, consists in a general denial of the prosecution case F and an assertion that the material prosecution witnesses are either liars or unreliable. There is also an alibi to the effect that at the time when he is alleged to have participated in conspiratorial meetings at the Drive-In house early in December 1982, he was busy with his studies at the University of Dar es Salaam.

G The defence of the fourth appellant also consists of a general denial of the prosecution case and an innocent admission of visiting the first appellant at the Drive-In house on two occasions, firstly in connection with the death and burial of the first appellant's sister, and secondly in connection with a Christmas party which the first H appellant hosted. He denies visiting Zanzibar with the first appellant to recruit Captain Albert Ballati, but admits going to Zanzibar on several occasions to buy some building materials for the house he was constructing in Dar es Salaam. Finally, he has an alibi to the effect that at the time when he is alleged to have been attending conspiratorial I meetings in early January 1983, he was busy attending to his sick relative, that is, one Oscar.

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The defence of the fifth appellant consists of a general denial of the prosecution case, A although he admits meeting PW46, that is, Captain Mohamed Suleiman Mape of the Navy Unit at Kigamboni. He claims, however, that the meeting was an innocent one connected with his request to have Mape assist the fifth appellant to transport some B fridges from Zanzibar in Naval vessels. He also has an alibi to the effect that at the time when he is alleged to have been attending conspiratorial meetings, he was busy either working in his farm at Kitunda where he had a project to build a house, or he was busy with his pigs. As to his extra-judicial confession, he contends that it was extorted from C him by the police and the national security men.

The defence case of the sixth appellant, like that of the other appellants, consists of a general denial of the prosecution case. There is, however, a specific denial of involvement in the recruitment of the fifth and seventh appellants. There is also an alibi D concerning his movements on 31 December 1982 when it is alleged that he visited New Africa Hotel together with Captain Mapunda and Kamando and recruited the seventh appellant. He contends that at the material time he was with his friends celebrating the end of the year at Mwenge Bar in Ukonga. He, of course, makes an innocent admission E of visiting the first appellant at the Drive-In house once in connection with the death and burial of the first appellant's sister.

The defence case of the seventh appellant, like that of the other appellants, consists of a F general denial of the prosecution case. However, he specifically denies recruiting PW8, that is, Staff Sergeant Boniface Temu and asserts that throughout the period when he is alleged to have

been involved in conspiratorial activities, he was on leave effective 24 December 1982 until his arrest. During his leave, he was busy attending to G personal matters on the dates when it is claimed he attended conspiratorial meetings.

As to the eighth appellant, it is his defence that he was on leave away from Dar es Salaam and in Iringa, until 30 December 1982. He denies using his car on 1 January 1983 to drive himself and other conspirators to a meeting at the house along Chole H Road. He asserts that his car was undergoing repairs at the time. He further denies attending a conspiratorial meeting on 3 January 1983, and puts forth an alibi to the effect that he spent most of the morning of that day in the company of a relative, namely one Tonny Roussons, ie DW3, who had arrived from Iringa and was in transit taking pupils to I a school at Arusha. He, however, admits visiting Battery

No 2 on 6 January 1983, but not for conspiratorial purposes, but to make personal A checks to enable him to report to a special meeting which was being held that day to discuss range practice matters.

As to the defence case of the ninth appellant, it consists also of a general denial of the prosecution case. He admits being in Dar es Salaam at the time of his arrest, but B asserts that he had come to Dar es Salaam from his usual station at Nachingwea for medical treatment at Lugalo hospital. He also admits meeting PW3, that is, Lieutenant Augustine Pancras Ndejembi with whom he conversed about a disturbance which had been occasioned by a soldier in PW3's unit when that soldier snatched a gun from a C policeman and made derogatory remarks about the Government. He, however, denies making any treasonable declarations or remarks to PW3 in the course of, or after, such conversation.

Let us now consider the merits of these appeals. The form in which the charges against the appellants were filed or presented in the High Court is similar to the one adopted in D the case of Mattaka v R (1). In that case the Court of Appeal of East Africa had occasion to consider the appropriate form of a treason charge and stated at 500:

E `The Criminal Procedure Code makes no specific provision as to the method of laying a charge for treason contrary to section 39(2) and the prosecution followed the English practice of setting out the various overt acts in each count after having first set out the statement and the particulars of the offence. This procedure has not been questioned and was, in our view, correct. It complied with the F provisions of section 135 of the Criminal Procedure Code as it sets out a statement of the specific offence charged and then gave such particulars as may be necessary for giving reasonable information as to the nature of the offence charged. Section 135 states:

"Every charge or information shall contain, and shall be sufficient if it contains, a statement of G the specific offence or offences with which the accused person is charged, together with such particulars as may be necessary for giving reasonable information as to the nature of the offence charged."

It also complied with the section 138, and the use of the English procedure in setting out the overt acts after the particulars was justified by section 3(3) of the Code which provides that

the procedure and practice observed by the High Court in England, as on 28th September, 1945, shall be followed in cases where the procedure is not prescribed by the Code.'

We were asked, in this appeal, by learned Principal State Attor-

neys for the Republic to give directions as to the propriety of continuing to lay charges in A the form that has been the practice hitherto. We are aware that the Criminal Procedure Code has been replaced by the Criminal Procedure Act 1985, with effect from 1 November 1985 as per Government Notice No 379 of 1985. We are also aware B that the High Court conducted the trial in the present case in accordance with the Criminal Procedure Code, since the trial commenced and ended before the Criminal Procedure Act 1985 came into effect. We are aware too that the provisions of s 3(3) of the Criminal Procedure Code which required compliance with the procedure and C practice of the High Court in England was repealed by s 7 of Act 26 of 1971. We do not, however, think that this change in the law which freed the criminal courts in this country from the requirement to comply with English procedure and practice, where there is no specific statutory provision to the contrary, necessarily entails a change in the D appropriate form of laying a charge for treason. What it means is that the courts in this country are no longer bound to follow English practice and procedure in a criminal trial and are free to develop a practice and procedure which is in keeping with the circumstances prevailing in this country.

Unfortunately, although we were asked to consider the propriety of continuing with the old practice, the request was made half-heartedly without any local circumstances being pointed out to justify a departure from the old practice. We think that this point was not sufficiently argued before us in this case and it would be unsafe to formulate a new procedure or practice without a sound foundation. We hold that the current practice should continue to be used until such a time in the future when a change is made by this Court or the Legislature. We note that the Criminal Procedure Act 1985 reproduced the relevant provisions of the Criminal Procedure Code and cannot therefore be construed to have changed the position concerning the form of laying a treason charge.

We next deal with the general complaints which are common to the grounds of appeal submitted by the appellants. The first complaint is that this case is a fictitious one concocted by the Police and the National Security Department of the Government to cover up the fatal shooting of Mohamed Tamimu alias Martin Tamimu on 6 January 1983. We find this contention ridiculous and untenable for four reasons. Firstly, if the Security Department and the Police needed a cover-up they would have picked the obvious cover-up, that is, they would have claimed that the deceased Mohamed Tamimu was killed accidentally while resisting arrest. After all, there

was evidence that the late Mohamed Tamimu had absconded from the army and was A on the run while the army looked for him. Secondly, a cover-up suggesting involvement of some

elements of the Army in a coup plot is so sensitive and potentially damaging to national security that no person in his proper mind, and certainly no one in the Police or B National Security Department can conceive such a cover-up, let alone take action to implement it.

Thirdly, the fatal shooting of Mohamed Tamimu alias Martin Tamimu was done by a national security man and not by the police. No convincing reason has been given to C explain why the innocent Police Force would agree to be involved in the cover-up.

Fourthly, there are at least five persons who reported the treasonable conspiracy to the authorities at different times. They are PW2, that is, Lieutenant Iddi Mushi Stambuli, who reported about the middle of December 1982 at Arusha. There is also PW11, that is, D Captain Albert Ballati who reported it in Zanzibar in the third week of December 1982. Also there is PW1, that is, Abdullah Shaban Mhando who reported it in early January 1983, in Dar es Salaam. Similarly, there is PW8, that is, Staff Sergeant Boniface Temu who reported it in Dar es Salaam also in early January 1983. Finally, there is PW3 E Lieutenant Augustine Pancras Ndejembi who reported it in Moshi towards the end of the first week of January 1983. These persons acted independently and at different times and places.

Strong criticisms have been raised in the course of this appeal against these witnesses who claim to have reported the conspiracy to the authorities. Let us examine the main F criticisms. We start with those concerning PW1.

It has been submitted to the effect that PW1 is either a liar or is in any case an unreliable witness. It was argued that it was highly improbable that the first appellant would have G divulged the coup plot to PW1, a mere taxi driver whom the first appellant had hired to drive him in the city. We think that the true position can easily be appreciated by bearing in mind the following factors: PW1 was an old acquaintance of the first appellant; they had been school-mates at Magamba Secondary School in 1965, and PW1 had been H driving the first appellant in his taxi for at least a fortnight before the first appellant divulged to him the coup plot. This association for a fortnight must have renewed and deepened their old acquaintance. Furthermore, the character of the first appellant is very relevant on this point. He is described by a number of witnesses, including PW13, that I is, Sunday Matola; and PW11, that is, Captain Albert Ballati; as well as PW15, that is, Agnes Ballati; and PW39, that is,

Asia Mbwana, as a very talkative and sociable person. Such a talkative and sociable A person, in our view, was likely to divulge the coup plot to an old acquaintance. Furthermore, there is the evidence given by many witnesses, including PW37, that is, Hadija Omari which shows that the first appellant had a weakness for heavy drinking. B The effect of alcohol is well known. It has a tendency to loosen tongues and to remove inhibitions.

Another criticism against PW1 concerns the conspiratorial meetings which are said to have been hosted by the first appellant at house No 80B Drive-In in the early part of December 1982. There was evidence given by PW41, that is, Hope Banyikwa and C PW96, that is, Ibrahim Issa, to the effect that PW1 used to participate in those meetings. It is submitted that if the meetings were conspiratorial as the prosecution contends, then PW1 must have been involved and his evidence

has to be treated with great caution. Undoubtedly, this submission has merit. However, it is apparent from the evidence of D PW1 that he was initially uncertain about the information given to him by the first appellant, and he decided to study the movements of the first appellant and his associates before reporting the matter to the authorities. Can such conduct on the part E of PW1 be condemned in a country like ours where it is proclaimed as a part of the national policy that the defence and security of the nation is the responsibility of every Tanzanian and particularly of every patriot? We do not think that the law of this country condemns such patriotic conduct on the part of an individual citizen who decides to F investigate a suspected treason before reporting it to the authorities. Such conduct is commendable and certainly does not, in our criminal law, make him an accomplice or a person with an interest to serve.

It has been argued further that there was an unnecessary delay by PW1 in reporting the G incident to the authorities. Undoubtedly, on the evidence, PW1 made an appointment to report to a senior official of the Intelligence Services, that is, Mr `X' on 15 December 1982. The appointment fell through because PW1's taxi broke down. As the description of the taxi was the only means by which Mr `X' was to identify PW1, it is understandable why PW1 missed the appointment. The following day PW1 flew out of the country to Harare in connection with an earlier commitment of his own. He did not return to Dar es Salaam until 1 January 1983, and managed to contact Mr `X' on 2 January 1983, when he successfully made his report.

It has been argued with some merit that PW1 ought to have

cancelled his trip to Harare until after successfully making his report to Mr `X'. But in A passing judgment on the conduct of PW1, one has to bear in mind that PW1 did not know exactly when the coup plot was fixed to take place. And, furthermore, one has to bear in mind that even the security services did not find it necessary to inform the B President about the coup plot until 6 January 1983, although they had already received a report about such a plot as early as mid-December 1982. Under the circumstances, we do not think that the conduct of PW1 can properly be censured. Like the learned Jaji Kiongozi, we find PW1 a credible and reliable witness.

Let us turn to the main criticisms directed against PW11. They are similar to those C directed against PW1. It has been submitted that it was highly improbable that the first appellant and the fourth appellant would seek to recruit PW11 into the conspiracy without first laying the ground for so doing. We think that there is a reasonable D explanation for the conduct of the first and fourth appellants. Firstly, the coup plotters needed the services of commandos, and PW11 was in charge of commandos. Secondly, the economic hardships which provided the motive power for the coup conspiracy, affected practically everyone both within and outside the army. It was, E therefore, reasonable for the plotters to expect to find sympathy from some elements in the army. Furthermore, Captain Ballati had a bad record in the army, as he had killed a fellow soldier. Such a record made him a likely target for coup plotters.

There is also a criticism about the conduct of PW11 in delaying to report the incident to F the authorities. He was first approached in early December 1982, and he was again contacted by the

first and fourth appellants on 12 December 1982, when the coup plot was discussed in detail and his assistance was sought. PW11 did not, however, report the matter to his commanding officer, that is, PW16, Major Hamisi Hemedi Nyuni until 31 December 1982. G

PW11 gave an explanation for his delay in reporting. At first he did not believe the information, and thought that the first and fourth appellants could have been sent by the National Security Department to test the loyalty of Army Commanders at a time of H national economic crisis. Later, when he realised that the plot was real, he decided to get more details about it before reporting the matter to the appropriate authorities. As in the case of PW1, we find this explanation reasonable and convincing.

There was also the additional criticism that PW11 delayed in submitting a written report I requested by his Commanding Officer, PW16. PW11 explained that after he had made his oral report to

PW16, he was assigned other pressing duties which necessitated a delay in his A submitting his written report. There is no evidence to contradict this assertion. There is another explanation which is inherent in the evidence. The crucial purpose of alerting the authorities about the existence of the coup plot was already accomplished by PW11 B making his oral report. The report was transmitted by PW16 to PW17, that is, Sei Bakari Omari, the Deputy Minister in the Ministry of Defence and National Service in the Union Government. The written report was required for a different purpose. PW16 needed it for discussions with commanding officers and other heads of security services in Zanzibar. C Thus the written report was not as urgent as the oral report and PW11 must have known so.

There is another criticism made against PW11, and it is based upon the fact that he was one of those people arrested in the course of the joint exercise conducted by the army, police and national security department. D We do not think that this criticism has merit. Many people were arrested by the police, undoubtedly because the police did not want to leave a stone unturned after they had taken over the investigations from the National Security Department. On our own evaluation of the totality of the evidence, we are satisfied that PW11 is a credible and reliable witness. E

We now turn to PW8, that is, Staff Sergeant Boniface Temu. Five main criticisms were levelled against this witness. It was submitted that it was improbable for PW8 to take part in the mini-meeting at Banana Bar in Ukonga on 4 January 1983, together with commissioned officers, when he was himself a non-commissioned officer. F We think that the behaviour pattern of soldiers under circumstances of a coup plot cannot be judged by the standard behaviour under normal circumstances. A coup plot is an abnormal event and soldiers involved may behave abnormally. It was also submitted that it was improbable for PW8 G to walk all the way from Banana Bar in Ukonga to State House to report the conspiracy instead of using the Shs 200/- which he claims to have been given by the seventh appellant. It is argued that he would have hired a taxi. We do not think that it is improbable for a soldier to decide to walk from Ukonga to State House H and save the money for better personal use, after all, walking is another way in which a soldier

may decide to keep himself physically fit. Moreover, we take judicial notice of the fact that the distance from Ukonga to State House is no more than a walking distance for a soldier.
It is also said that PW8 is uncertain about the time he arrived at State House. We do not think that this uncertainty is surprising, in
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view of the fact that the witness was testifying about events that took place many years A back. It was also submitted that it was improbable for PW8 to recall what happened in Banana Bar on 4 January 1983 after taking four beers in addition to another two which PW8 had B previously consumed at the house of the seventh appellant en route to Banana Bar. There is no evidence that PW8 got drunk as a result of drinking these beers. On the contrary, there is evidence that the meeting at Banana Bar in the course of which PW8 consumed the four beers, lasted from 7 or 8 pm to 10.00 or 11.00 pm. That being the position, normal metabolism of the body must have prevent PW8 from getting drunk. C
Finally, it was submitted that the fact that PW8 was one of the persons arrested by the police during the crackdown requires that his testimony be treated with caution. The answer given in respect of a similar submission concerning PW11, also applies here. D On our own evaluation of the totality of the evidence of this witness, we are satisfied that he was a credible witness.
We turn next to the main criticism directed against PW2, that is, Lieutenant Iddi Mushi Stambuli. It has been submitted that it was improbable that the 2nd appellant would E divulge the coup plot to PW2. With due respect to Mr Lakha who made this submission, we do not see any improbability when account is taken of the following factors: On the evidence of PW2, the 2nd appellant was an old friend or acquaintance of PW2. In his unsworn testimony given in his defence in the main trial, the second appellant did not F contradict PW2 on this point. Furthermore, PW2 found the second appellant at a counter in the bar house. It can reasonably be inferred that the second appellant had been drinking in the bar house, unless there is evidence to the contrary. There is no such contrary evidence. We have already pointed out the effect of alcohol. It tends to G loosen tongues and remove inhibitions. Under the circumstances, the second appellant was most likely to divulge the plot to his old friend. On the totality of the evidence adduced by the prosecution, we are satisfied that PW2 is a credible and reliable witness.
We turn next to the main criticisms directed against PW3, that is, Lieutenant Augustine H Pancras Ndejembi. It has been submitted that it is highly improbable that the ninth appellant would divulge the coup plot to PW3 who was not closely connected to him. With due respect to Mr Jadeja who made this submission on behalf of the ninth appellant, we can see no improbability in respect of that fact bearing in mind the I following factors: The disclosure was not suddenly made by the ninth appellant to PW3. It was made in the
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course of mutual discussions between the ninth appellant and PW3 concerning an A incident of a disgruntled soldier who had snatched a firearm from a policeman, caused a disturbance and

made derogatory remarks about the Government. That soldier apparently belonged to PW3's Unit. In the course of that conversation PW3 agreed with B the ninth appellant about the validity of the grievances expressed by the soldier, but disproved the manner in which those grievances were expressed by that particular soldier. The ninth appellant responded by expressing full support for the soldier, and informed PW3 that a coup plot was in the offing for the purpose of remedying the C grievances. We think that the ninth appellant must have felt that he could safely divulge the coup plot to PW3 who recognised the validity of the grievances, notwithstanding PW3's disapproval of the conduct of the disgruntled soldier.

The other main criticism directed against this witness concerns his failure to report the D conspiracy to the authorities and instead reporting it to his father. PW3 explained why he acted as he did. He was not sure who in authority was not involved in the coup plot, after the ninth appellant had informed him that even a Major General was involved in the plot. So PW3 decided to be cautious and decided to report to his father in Moshi, who E was then the Area Commissioner in that part of the country. We think this explanation is reasonable. After all, his father was a man of authority in the Government and could take appropriate measures, consequent upon such a report. The evidence shows that that is F what happened. The report was transmitted to the Regional Commissioner of Kilimanjaro Region and thence to the Prime Minister. On our own evaluation of the totality of the evidence, we are satisfied that PW3 is a credible and reliable witness.

Having found all these relevant material witnesses to be credible and reliable, we are led G to the conclusion that no reasonable person can say that the treasonable conspiracy charged in this case is a fiction concocted by the National Security Department and the Police. We are satisfied that there was a treasonable conspiracy as reported by these witnesses. We are satisfied further, that the evidence adduced by these witnesses is H sufficient to bring into operation the provisions of s 12 of the Evidence Act 1967 which states:

`Where there is reasonable ground to believe that two or more persons have conspired together to commit an offence or an actionable wrong, anything said, done or written by anyone of such persons I referring to or in execution of or furtherance of their

common intention after the time when such intention was first entertained by anyone of them, is a A relevant fact as against each of the persons believed to be so conspiring as well as for the purpose of proving the existence of conspiracy as for the purpose of showing that any such person was a party to it.' B

We notice that out of the five persons who reported the conspiracy to the authorities, four of them were soldiers of the TPDF. This demonstrates, in our view, how over the years the TPDF has truly become a peoples' defence force-an army which every Tanzanian of good will is entitled to be proud. C

We come next to another general complaint raised by learned advocates for the appellants. Practically all advocates for the appellants have complained against the attitude of the trial Jaji Kiongozi in accepting the evidence of a number of material prosecution witnesses on the basis

that he found no reason why such witnesses should D tell lies against the appellants. Learned advocates for the appellants have submitted, in effect, that the learned Jaji Kiongozi's attitude or approach is wrong, since it appears to proceed on the assumption that witnesses for the prosecution were telling the truth unless the contrary was shown. Both Mr Lakha and Mr Jadeja took the occasion to E express a complaint against what they termed to be a general practice by judges in the courts below and magistrates, of adopting a similar attitude. It is the contention of the advocates for the appellants that such an approach appears to shift the burden of proof in a criminal case. F

This criticism by the learned advocates is directed particularly in respect of the Jaji Kiongozi's handling of the evidence given by PW1, PW39, PW41, PW8, PW9, PW31, PW32, PW34 and PW35. We have considered these criticisms very carefully and we have noticed that learned Jaji Kiongozi treated the absence of apparent reasons for lying G against the appellants as only one of the factors for accepting the evidence of the relevant witnesses. For instance, in handling PW1, Abdallah Mhando, the learned Jaji Kiongozi had this to say at 2229 of the Judge's notes:

H `Abdallah Mhando appeared to be well versed with what he told the court. He was a very straightforward witness who stood firm despite long cross-examination by Mr Lakha. I detected no cunning devices in his evidence and I am satisfied that he was a credible witness. There was no reason why he should have decided to tell lies against Macghee. As for his arrest and detention that does not necessarily make him an untruthful witness.'

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It is evident that the learned Jaji Kiongozi gave at least four grounds in favour of this A witness, and one of the grounds was the apparent lack of a reason to tell lies against Macghee. Since one of the major tasks of a trial court is to determine whether a witness is telling the truth, it is logical for such a court to consider whether a witness has reason B for lying against an accused person. This is what the learned Jaji Kiongozi appears to have been doing in the present case.

The same approach can be seen in the handling of the other material witnesses. At 2234 of the Judge's notes, the learned Jaji Kiongozi had this to say: C

`Kadego's defence that he did not know Asia, leave alone visiting the Mkwajuni house is, on the evidence available, not true. Why should Asia and Hope tell lies against him? Why should Lt. Stambuli decide to cook-up such a serious story against him? There was no evidence at all that the D two were enemies. On the contrary, they worked together in Monduli and Rombo Districts. On the totality of the evidence, I am satisfied that Kadego's unsworn defence was a clumsy attempt to evade the consequences of his crime. He apparently did not tell the court why he left the country.' E

At least four grounds are given for accepting the evidence of Asia, Hope and Stambuli. Two of the grounds are common to all these witnesses, that is, the absence of a reason for lying and the failure by Kadego to tell the court why he left the country. There are two F additional grounds in favour of Stambuli. Firstly, the absence of enmity and the fact that he had been working together with Kadego in Rombo District. Similar approach applies to the other relevant

prosecution witnesses in respect of whom the criticism has been raised by the defence advocates against the Jaji Kiorgozi's attitude. With due respect, we find the criticism misconceived. G
The other main common ground of complaint against the conduct of the learned Jaji Kiongozi was raised by Mr Jadeja, learned advocate, to the effect that the learned Jaji Kiongozi failed to make adequate summing up of the case to the assessors. It is the H contention of Mr Jadeja that it is mandatory for a trial judge to sum up the case to the assessors before taking their opinions. Mr Jadeja has invited this Court to overrule the decision in the case of Andrea v R (2), where it was held to the effect that the summing up to assessors is a discretion and not a mandatory duty of a trial court. Mr Jadeja has invited us to restore the earlier decision in Milligwa v R (3) where it was held to the effect that there was a mandatory duty

to sum up the case to the assessors before taking their opinions. We are satisfied that A the decision in Andrea's case is the correct one for the reasons given therein, that is, the relevant statutory provision is unambiguous and crystal clear. We cannot interpret the word may used under s 283(1) of the Criminal Procedure Code (now s 298(1) of the Criminal Procedure Act 1985) to mean shall. To do so would be to do violence to clear B statutory provisions. We, however, agree with the views expressed in Andrea's case that, although it is not mandatory for the trial judge to sum up the case to the assessors before taking their opinions, it is prudent as a matter of practice so to do, except in the C simplest of cases. The present case was not a simple one, and the learned Jaji Kiongozi properly decided to sum up the case to the assessors before taking their opinions. After all, as already mentioned, the case took about a year to complete.
For the avoidance of doubts, we must point out that it is in any event mandatory upon a D trial judge to take the opinions of the assessors before giving judgment. This is a necessary implication of the provisions of s 248 of the Criminal Procedure Code (now s 265 of the Criminal Procedure Act 1985) which requires all criminal trials before the High Court to be with the aid of the assessors.
We have examined the summing up of the learned Jaji Kiongozi. It covers ninety-one E pages of fullscap paper. Although it is true that the learned Jaji Kiongozi did not state every detail and it would have been impossible so to do, it is apparent to us that he summed up the substance or gist of the case for the prosecution and the defence. We F do not think a trial judge is required to state all details of the case in his summing up. If he does so, it would cease to be a summing-up. It is sufficient if he states the substance or gist of the case on both sides in a manner which enables the assessors to give their opinions on the case in general, and on any particular point that the trial judge needs G their opinion. This is what appears to have been done in the present case. For instance, in connection with the seventh appellant in respect of whom Mr Jadeja specifically raised this complaint, the learned Jaji Kiongozi summed up the case at length from pp 1976 to 1978 of the Judge's notes. The gist of the prosecution case against the seventh H appellant appears on those pages, whereas the gist of the seventh appellant's defence is dealt with from pp 2006 to 2008 of the Judge's notes. The summing up deals with both the seventh appellant's general denial of the prosecution case and his alibi. For those reasons, we think that

the summing up by the learned Jaji Kiongozi in respect of the I seventh appellant and the other appellants cannot be faulted.

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Another main common ground of complaint made by the learned advocate for the A appellants is to the effect that the learned Jaji Kiongozi failed to consider or give adequate consideration to the defence of the appellants. This complaint was raised in the course of the appeal in respect of the first, second, third, fourth, seventh and eighth B appellants. We have carefully considered this ground. It is true that the learned Jaji Kiongozi did not consider each and every detail of the defence of these appellants, predictably because the trial took such a long time. It is apparent, however, that the learned Jaji Kiongozi set out and considered the gist or substance of the defence of C each of these appellants. Can it be said that in so doing the learned Jaji Kiongozi failed to consider any material detail of the defence of the appellants? Since the learned Jaji Kiongozi grasped the gist or substance of the case for the defence, he must necessarily have been aware of the material details from which such gist or substance is derived. D This is borne out clearly from p 2228 to p 2264 of the Judge's notes where the learned Jaji Kiongozi dealt at length with the main criticisms levelled by the defence side against the prosecution case.

One other main common ground of complaint is that the magistrates or the Justice of E the Peace, before whom extra-judicial confessions were made, did not comply with all the formalities required when taking such extra-judicial confessions. Unfortunately, neither Mr Lakha nor any of his learned friends who argued this appeal before us, was certain as to the formalities which apply in this country. The learned attorneys for the F Republic contended that the only relevant formalities are those contained in the Judges' Rules issued by the Judges of the Queen's Bench Division in England. The case of Nayinda s/o Batungwa v R (4) was cited in support of that contention. In that case the following words from a ruling of a Judge of the High Court were cited: G

> `The Judges' Rules apply to Tanganyika and therefore before taking a statement from a person in custody the police officer should administer the caution prescribed by Rule 5 of the Judges' Rules....
>
> In my view, a magistrate who is recording an extra-judicial statement should give the person making H the statement the same caution. In fact it is usually done and there has been a High Court Circular some time ago saying that it should be done.'

We agree that Nayinda's case lends support to the proposition that the English Judges' I Rules, at least as they were at the time of that case, were applied to this country by a High Court Circular.

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But that is not the end of the problem. Members of this Court, as well as all the learned A advocates and the Principal State Attorneys who appeared in this appeal, were fully aware throughout the hearing of the appeal that there is a current practice concerning the taking of extra-judicial statements in this country which contains rules which are B more elaborate than

the Judges' Rules. Unfortunately, no one was able to assist the Court in the course of the appeal to trace the authoritative source of this current practice. The Court had to conduct further research on its own after the conclusion of the appeal, and this necessarily resulted in an unexpected delay in giving this judgment. C This exercise was, however, worthwhile and rewarding. We are now in a position to say that the current local practice can be traced to the year 1963 when the Magistrates' Courts Act 1963 was enacted. The Act contained provisions for the appointment of Justices of the Peace, both ex-officio and appointees of the Minister responsible for D Legal Affairs. Under s 56(2) of the Act the appropriate judicial authority, that is, the Chief Justice, is empowered `to issue instructions not inconsistent with any law for the time being in force for the guidance and control of Justices in the exercise of their powers, functions and duties and every justice shall comply with and obey such instructions'. E

On the authority of the provisions of s 56(2) of the Act, the Chief Justice issued instructions to Justices of the Peace to guide them on, among other things, the manner of taking extra-judicial statements, and these instructions were published in a booklet by F the Government Printer under the Official Seal of the United Republic, and were effective from the date the Act came into force. This booklet entitled `A Guide for Justices of the Peace' contains on pages four to five the relevant instructions hereinafter called `The Chief Justice's Instructions'. The position, therefore, appears to be that since G 1 July 1964, when the Magistrates' Courts Act 1963 came into force, the taking of extra-judicial statements by Justices of the Peace has in this country been regulated by the Chief Justice's Instructions. The Judges' Rules remain applicable to the police only, for whom they were in any case, originally intended.

The question then arises whether these Instructions to Justices of the Peace extend to H the taking of extra-judicial statements by magistrates as well? There is a misconception in this country, and was apparent in the course of these proceedings both in the High Court and in this Court, that a magistrate of every description is an ex-officio Justice of the Peace. That does not appear to be correct. Under the I Magistrates' Court Act 1963, which has been repealed

but substantially reproduced by the Magistrates' Courts Act 1984, the only section which A makes magistrates ex-officio Justices of the Peace is s 52(1)--(now s 58(1) of the Magistrates' Courts Act 1984) which provides:

B `A Primary Court Magistrate shall be a Justice of the Peace for the District for which the Primary Court to which he is assigned is established; and in his capacity as a Justice is hereby assigned to every District Court therein.'

It would seem that only Primary Court Magistrates are ex-officio Justices of the Peace. C The Resident Magistrates and the District Magistrates who took the extra-judicial statements in the present case are not ex-officio Justices of the Peace. Of course, this does not mean that they were not empowered to take extra-judicial statements from persons in custody. They clearly had such powers by virtue of the provisions of s 28 of D the Evidence Act 1967. But are they also bound by the Chief Justice's Instructions when taking extra-judicial statements?

Although the Chief Justice's Instructions specifically refer to Justices of the Peace and make no mention of magistrates, we are satisfied that the instructions were meant to E apply to magistrates also. It is inconceivable, on the grounds of public policy, that there could be two different sets of rules, one applicable to the taking of extra-judicial statements by Justices of the Peace, and another to magistrates when taking such statements. This is because magistrates and Justices of the Peace play the same role F while taking extra-judicial statements. They have, therefore, to be governed by the same rules.

We now come to the crux of the matter. It is indisputable that none of the magistrates who took the extra-judicial statements, which were admitted as exhibits at the trial, fully G complied with the Chief Justice's Instructions. Does this breach of the instructions render the statements inadmissible? We think that the answer to this issue is to be found in the case of Nanyinda s/o Batungwa already cited above. At p 693 of the report it is stated, and we quote: H

`But it must be kept in mind that the Judges' Rules are administrative rules; and breach of them does not automatically result in the exclusion of the statement. The breach is but one of the circumstances, I though the important one, for the trial judge to take into account in deciding whether or not the statement is voluntary.'

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Although this decision concerned the Judges' Rules as they then applied to this country, A we are satisfied that the position stated therein applies also to breach of the Chief Justice's Instructions. This means that in as far as the extra-judicial statements of the appellants are concerned, the Court has to consider whether apart from the breach of B the relevant formalities, there are other circumstances which suggest that these extra-judicial statements could have been involuntarily made before the magistrates.

Let us now see whether there are such circumstances relevant to all the appellants who made the extra-judicial statements. It is common ground that the appellants, who made C the extra-judicial statements, had been in police custody shortly before they were taken to the magistrates, and that they either did not complain against treatment by the police, or they expressly informed the magistrates to the effect that they had not been induced by anyone to make the statements. It is also common ground that they were D handed back to the police after they had made the extra-judicial statements. On the basis of this fact, there is a common line of defence by the appellants to the effect that the conduct of the appellants before the magistrates who took the statements was a E mere pretense of freewill so that the particular appellants concerned could avoid a repetition of torture by the police or by the national security men, who had previously tortured them to induce them to confess to the offences charged.

It is part of this line of defence that the appellants concerned ought not to have been F handed back to police custody, but should have been put into judicial custody, that is, put into remand custody by the magistrates after taking the extra-judicial statements.

In our considered opinion, the issue whether or not the particular appellants pretended to be free agents before the magistrates, cannot be resolved in a court of law by other G means except by reference to the conduct and physical appearance of the persons concerned. Only the

Almighty God, or perhaps those who claim to have what is known in psychology as Extra Sensory Perception (ESP), can tell directly what goes on in another person's mind without reference to the conduct or physical appearance of that other H person. For most humans, including this Court, what goes on in the minds of another person can reasonably be ascertained only by reference to the conduct or physical appearance of that person.

In the present case, since the appellants who made the extra-judicial statements made it I known to the magistrates that they were free agents, no reasonable tribunal can find otherwise, unless there

was something in their physical appearance or conduct which was inconsistent with A being a free agent; or unless there is cogent evidence to show that they had been tortured while in custody before being taken to the magistrates.

With regard to the submission that the appellants concerned ought not to have been B handed back to police custody, but should have been put in remand custody, we do not see how in law such suspects could have been remanded in custody before they were charged in court. In any case, according to the Chief Justice's instructions above mentioned, the suspects are required to be handed back to police custody. C The lengthy steps which a Justice of the Peace or magistrate is instructed to take contain instruction No 10 which reads: `The accused is returned to police custody.' It is followed by the signature of the Justice (or the magistrate) concerned, as the case may be.

Let us now try to see whether there are any unique circumstances which may suggest D that any of the appellants who made the extra-judicial statements might have done so involuntarily. In the case of the first appellant, it is common ground that he informed the magistrate that he had not been tortured. On the evidence, there is nothing in his E conduct or physical appearance to belie this information, since the five old scars which he had on his body, were, according to his testimony, sustained by him about two-and-a-half years before this matter. Those scars, therefore, have no relevance to this case. There is, of course, the suggestion that the magistrate did not sufficiently F identify himself as such to the first appellant. This suggestion, however, is contradicted by the record. For instance, it is quite clear on pp 808, 810, 837 and 838 of the Judge's notes, that the resident magistrate identified himself as a magistrate and the first appellant understood him to be such.

As to the allegation that the first appellant was tortured while in police custody, the G learned Jaji Kiongozi specifically addressed his mind to it and stated in his ruling at the end of the trial that:

> `Having examined with the closest care and attention all the circumstances in which the accused gave his confession, I am satisfied that Superintendent Siame, Mr Y and Mr H told the truth when they H said that they did not torture the accused, so as to induce him to make a statement before the Justice of the Peace.'

With due respect to Mr Lakha, learned advocate, we find nothing in his written or oral submission which can fault the trial Jaji Kiongozi for accepting the evidence of I Superintendent Siame, or Mr `Y'

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Or Mr `H' on this point. Moreover, we can find nothing on record to enable us to come to A a conclusion which is different from that arrived at by the learned Jaji Kiongozi, regarding these witnesses on this issue. We are thus led to hold that the extra-judicial statement made by the first appellant was a voluntary one and therefore was properly admitted as evidence in this case. B

What about the circumstances under which the fifth appellant made his extra-judicial statement? It is common ground that he also informed the magistrate to the effect that he had not been tortured while in police custody. Was there anything in his conduct or C physical appearance to suggest the contrary? We can see none. There is of course the suggestion made in his evidence given in the trial within the trial that he could not have told the magistrate otherwise because Mr Masolwa, that is, PW71, and his team were present when the magistrate inquired about the possibility of torture. We do not think that D the fifth appellant's evidence on this point is cogent, because this suggestion was not put forward to Mr Masolwa or the magistrate under cross-examination. The suggestion seems to be an afterthought on the part of the fifth appellant.

The fifth appellant also testified in his trial within the trial that he was given notes by E PW71 to use and that he actually used such notes while giving his extra-judicial statement to the magistrate. This evidence was, however, contradicted not only by PW71 but also by the magistrate in question. Part of the fifth appellant's evidence in his F trial within the trial is to the effect that he was tortured by the police and the national security men while under police custody being taken to the magistrate. The torture was applied to his private parts so severely that those organs from which he had been suffering from a venereal disease got swollen up. This evidence, however, is G contradicted by the evidence of PW75, a medical assistant who examined and treated the fifth appellant in connection with his venereal disease and a fever. The medical assistant noticed nothing wrong with the fifth appellant's private parts apart from this venereal disease which had nothing to do with this matter.

The fifth appellant, while giving his evidence in his defence in the main trial before the H court including the assessors, repeated his assertion about the torture. This assertion was, however, made in unsworn testimony given by the fifth appellant and was therefore not open to cross-examination by the prosecution. It was quite improper on the part of I the fifth appellant to repeat this assertion before the assessors when he was not prepared to give evidence on

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oath and be cross-examined to test the veracity of his assertion. In the case of Ezera A Kyabanamaize and Another v R (5) the Court of Appeal for East Africa adopted the disapproval

expressed by the Court of Criminal Appeal in England in the case of O'Neill and Ackers v R by stating at 313--314: B

`However, what the court desires to call attention to is this: having suggested this to the police, and having repeated the suggestion before the jury, counsel did not call his client to support what he had been instructed to say, and the court has no hesitation in saying that that is not the proper practice ... C In this case a violent attack was made on the police. It was suggested that they had done improper things ... the applicants had the opportunity of going into the witness box at the trial and explaining and supporting what they had instructed their counsel to say. They did not dare to go into the witness box and, therefore, counsel, who knew that they were not going into the witness box, ought not to have D made these suggestions against the police. It is one thing to cross-examine properly and temperately with regard to credit, it is however, entirely wrong to make such suggestions as were made in this case, namely that the police beat the prisoners until they made confessions, and then, when there is the chance for the prisoners to substantiate what has been said by going into the E witness box, for counsel not to call them. The court hopes that notice will be taken of this, and that counsel will refrain, if they do not intend to call their clients, from making charges which, if true, form a defence but which, if there is nothing to support them, ought not to be pursued.' F

The present case is on all fours with what was said in O'Neill's case. Counsel for the appellants who confessed, cross-examined prosecution witnesses extensively before the assessors suggesting that those appellants had been tortured. The appellants when G giving their unsworn statements in their defence before the assessors repeated the suggestions of torture already raised by counsel under cross-examination. This was quite improper. Counsel ought not to have raised the suggestion of torture in the main trial unless their clients were ready to go into the witness box and be cross-examined by the prosecution to test the assertions. H

On our own evaluation of the totality of the evidence, we are satisfied that the fifth appellant was not subjected to any torture to induce him to make the extra-judicial statement which he made to the magistrate. We find, therefore, that the extra-judicial I statement of the fifth appellant was properly admitted as evidence in the trial.

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We turn to the extra-judicial statement of the sixth appellant to see whether there are any A circumstances to suggest that the statement could have been involuntarily made. In the evidence given by the sixth appellant in his trial within the trial, it is apparent that he is another person who told the magistrate concerned that he had not been tortured while in B police custody. On the evidence, it would seem that there was nothing either in his conduct or his physical appearance to contradict the information communicated by him to the magistrate, except the admitted fact that the sixth appellant used notes while making his statement to the magistrate. The use of these notes may mean one of three C things: Firstly, it may mean that the sixth appellant was using the notes to assist him to tell a detailed coherent and long story. Secondly, it may mean that the appellant was using the notes to assist him to remember details which are otherwise difficult to remember, such as specific dates in the long past. Thirdly, the sixth

appellant could D have used the notes to prompt him to remember a story previously memorised by him. It is contended on the part of the sixth appellant that the third alternative was actually what happened in the present case. Undoubtedly, the extra-judicial statement of the sixth E appellant is a very long and detailed one; it covers eight pages of fullscap paper. According to the evidence of the sixth appellant, given in his trial within the trial, he was given a long and detailed statement by the police to memorise at the CID Headquarters on 18 January 1983. Thereafter, he was returned to his police cell where he remained F until 20 January 1983, when he was taken to the magistrate to make his extra-judicial statement. The sixth appellant did not say in his trial within the trial how long it took him to memorise the police statement at the CID Headquarters on 18 January 1983. But G from his unsworn testimony in his defence in the main trial, it would appear that he was at the CID Headquarters between 10.00 am and 2.00 pm. Whatever be the case, such a long and detailed statement requires much more than four hours to memorise.

Not only that, the sixth appellant would need time to rehearse and refresh his memory before being taken to the magistrate on 20 January 1983, if he was to reproduce it H successfully. On the evidence it does not seem that the sixth appellant was given the opportunity to rehearse or refresh his memory. On the contrary, he spent the whole day of 19 January 1983 in his unpleasant police cell. Such a place was conducive to forgetfulness about details that he might have memorised the previous day. We are I satisfied that under these circumstances, with or without notes, it would have been impossible

for the sixth appellant to reproduce such a long detailed story memorised about two A days before. Moreover, there was evidence adduced by the prosecution to contradict the assertion that the police gave him the notes. It would seem that the sixth appellant got the notes in a manner best known to himself and used them to assist him to remember B some details of his past experience and to tell them in coherent manner.

What about the possibility of the sixth appellant being tortured while in police custody before being taken to the magistrate? The learned Jaji Kiongozi specifically considered the point and concluded that there was no such torture. One of the factors which led the C learned Jaji Kiongozi to that conclusion is stated in his ruling thus:

> `If the security and the police had decided to torture Captain Roberts to obtain a statement, why should they have chosen to do so in broad daylight in such a place as the open grounds of D Gymkhana grounds?'

We think this is a cogent point, and we concur with the learned Jaji Kiongozi in his conclusion concerning the torture. He was right in admitting the sixth appellant's extra-judicial statement as evidence in the trial. E

Next we come to the confession of the seventh appellant. On the evidence adduced in the trial within the trial, including the extra-judicial statement of the seventh appellant, it is apparent that he was one of the persons who informed the magistrate concerned to the F effect that he had not been tortured while in police custody. There was nothing either in his conduct or his

physical appearance to suggest the contrary. His assertion made in his evidence in his trial within the trial, to the effect that he had been previously tortured while at the CID Headquarters was contradicted by the evidence given on the G prosecution side. On our own evaluation of the evidence, we think that the CID Headquarters is the most improbable place for suspects to be tortured either by the police or the national security men. One would need very cogent evidence to show that such a thing can be done at such a place. There is no such evidence here. H The learned Jaji Kiongozi was of course aware that torture by the police and the national security men has happened in the past in this country; but such tortures happened at places inaccessible to members of the public. Unfortunately, this awareness on the part of the learned Jaji Kiongozi appears to have had an improper influence on him I concerning this case. This can be seen in his ruling where he stated:

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A `We know that tortures by the police and members of the security do happen and could very well have happened with Mbogoro.'

This statement of the learned Jaji Kiongozi would seem to indicate that he accepted the probability of the seventh appellant having been tortured while under police custody. If B that is what the learned Jaji Kiongozi thought, then he should not have accepted the extra-judicial statement in evidence. The learned Principal State Attorneys who appeared for the respondent have complained that the learned Jaji Kiongozi allowed himself to be C improperly influenced by matters extraneous to the present case, that is, by cases that he might have heard in the past. We think that the criticism by the learned Principal State Attorneys is justified. The learned Jaji Kiongozi ought to have confined himself to the evidence adduced in the present case concerning the allegations of torture and D decided the matter accordingly. However, we are satisfied that had he done so, he would, on the evidence before him, still have come to the same conclusion as he did, that the statement was voluntary and therefore admissible as evidence in the trial.

We now come to the total case in respect of each of the appellants. We start with the E first appellant. The prosecution case against him, as already stated, has many arrows or aspects directed against him. To begin with, it is alleged that he was one of the four originators of the coup plot. The only evidence concerning the first appellant's F participation in conceiving and hatching up the coup plot is his retracted confession. The law regarding the value and weight to be attached to retracted confessions has been settled in East Africa in a number of cases, culminating with the case of Tuwamoi v Uganda. One of the major legal propositions in Tuwamoi's case is that a court can G convict the maker of an uncorroborated retracted confession if it warns itself of the danger of acting upon such an uncorroborated retracted confession, and is fully satisfied that the retracted confession cannot but be true. In the present case, the learned Jaji Kiongozi was aware of the correct legal position.

In our considered opinion, if this retracted confession is truthful, it implicates the first H appellant beyond reasonable doubt with the overt act of conspiracy charged in Counts 1, 2 and 3. On our own evaluation of the evidence, we are satisfied that the retracted confession of the first

appellant is nothing but cogent and truthful. We therefore find him I fully implicated in the overt act of conspiracy charged in Counts 1, 2 and 3. We may also point out at this stage
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that the evidence of PW1 clearly shows that the role of the first appellant did not end with A the conception and hatching up of the coup plot but he continued to participate in the conspiracy until the very end.
We turn next to his alleged role in arranging or facilitating the entry into the country of a B fellow conspirator, namely, the late Mahomed Tamimu alias Martin Tamimu. As already mentioned, this conduct on the part of the first appellant constitutes overt act number 3 charged in Count 3. The relevant material evidence on this issue is that given by PW22 (Mohamed Omari Hatibu), PW23 (Bakari Daudi Shoka), PW24 (Rehema Samuel C Mayanza), PW25 (Athumani Bakari), PW26 (Hussein Salum Sarai), PW27 (Ramadhani Ali) and PW28 (Bakari Saidi). The totality of this evidence is to the effect that some time in November 1982 the first appellant travelled from Dar es Salaam to Makorora in Tanga D and sent PW22 to Mombasa in Kenya to fetch the late Mohamed Tamimu alias Martin Tamimu and accompany him to Tanzania, where the first appellant met them at Duga and travelled with them by taxi first to Tanga and thence to Dar es Salaam.
Mr Lakha has made a number of criticisms regarding the two crucial prosecution E witnesses on this point, that is, PW 22 and PW24. PW24 testified about the arrival of the first appellant in company of PW22 at her home in Tanga and their subsequent return thereto accompanied by a third person who was introduced to her as Martin. On the evidence of PW22 this third person is no other than the late Mohamed Tamimu alias Martin Tamimu. F
Mr Lakha's main submission is that the evidence of PW22 and PW24 cannot be relied upon, firstly because PW22 is a self-confessed lying witchdoctor and an accomplice, and secondly because PW24 is uncertain about the time of certain events and her G testimony in court contains certain details which are missing in her police statement.
As we shall demonstrate later in this judgment, the fact that PW22 is proved to have used deception in his practice as a witchdoctor does not necessarily make him generally unreliable, because the deception involved was part and parcel of his practice. H As to the issue of being an accomplice, we agree with Mr Lakha that PW22 was at least an accomplice on the alternative charge of misprision of treason, as he failed to report the treasonable conspiracy to the authorities.
However, the evidence of PW24, if accepted, amply corroborates PW22 in material I particulars. We have considered the criticisms
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levelled against PW24. We find the uncertainty about dates and hours explicable on the A ground that the witness was testifying about events that took place many years back, and her memory was thus affected by the long lapse of time. As to her testimony in court being more detailed than her police statement, we think this is also explicable on B the ground that a police

statement is not meant to be as detailed and as thorough as the testimony given in a trial in court. We are satisfied that PW24 is a credible witness and that her evidence corroborates that of PW22 in material particulars.

The massive and substantially coherent evidence of PW22, PW23, PW24, PW25, C PW26, PW27 and PW28 is not contradicted by other evidence. On the basis of this evidence, there is no doubt whatsoever that the first appellant brought the late Mohamed Tamimu alias Martin Tamimu into the country. What we have to ask ourselves here is whether this conduct of the first appellant was in furtherance of the coup plot. The only D evidence which links the said Mohamed Tamimu alias Martin Tamimu with the coup plot is the extra-judicial statement made by the first appellant. In that statement the first appellant mentions him as one of those who conceived and hatched up the coup plot. On the totality of the evidence, we have no doubt whatsoever that the first appellant E brought his fellow conspirator into the country in furtherance of the plot. It follows, therefore, that overt act number 3 charged in Count 3 is proved against the first appellant.

The next prosecution arrow specifically aimed at the first appellant is that he was F assigned and accepted to recruit some elements of the airwing and commandos of TPDF, and towards that end recruited the fourth, fifth and sixth appellants as well as PW11, that is, Captain Albert Ballati. Although the recruitment of the fourth, fifth and sixth appellants was not specifically averred as an overt act in any of the counts charged, we G think that in law proof of an overt act not specifically charged has the effect of aggravating the offence or offences charged and may, therefore, be relevant to sentencing.

The evidence concerning the recruitment of elements from the airwing, particularly the fourth, fifth and sixth appellants, consists solely of the extra-judicial statements of the H first and fifth appellants. The extra-judicial statement of the first appellant does not specifically mention the names of those recruited from the airwing, but this lacunae in the evidence is filled in by taking into consideration the exta-judicial statement of the fifth appellant. Under the provisions of s 33(1) of the Law of Evidence Act 1967, that I subsection states:

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`When two or more persons are being tried jointly for the same offence, or for different offences A arising out of the same transaction, and a confession of the offence or offences charged made by one of those persons affecting himself and some other of those persons is proved, the Court may take that confession into consideration against that other person.' B

The confession of the fifth appellant, if taken into consideration, clearly shows that among those recruited from the airwing were the fourth, fifth and sixth appellants. But what value or weight is to be attached to this extra-judicial statement of the fifth appellant C on this matter? The confession was retracted by the fifth appellant. However, as already mentioned earlier in this judgment, a retracted confession can be a basis for conviction without corroboration if the court is satisfied that such confession cannot but be true, and warns itself of the danger of convicting without corroboration. The learned D Jaji Kiongozi was satisfied that the fifth appellant's confession was nothing but the truth.

This finding of the learned Jaji Kiongozi has been the subject of a strong attack by the advocates for the appellants, who pointed out that there were numbers of proven untruthfulness in the statement. These alleged falsehoods include the alleged E involvement of foreign powers in the coup plot; the alleged involvement of Major Silas Mayunga in the same coup plot; the alleged presence of Father Tom at the Christmas party on 25 December 1982; the alleged conspiratorial meetings on 27 December 1982 F and 28 December 1982; the alleged presence of the first appellant at a meeting at house No 1127 along Chole Road on 31 December 1982, when the first appellant is claimed to have been away from Dar es Salaam, and in Zanzibar; the alleged conspiratorial meeting on 1 January 1983 at house No 1127 along Chole Road when G such meeting never took place, according to the evidence of Steven Buberwa and Oscar Ngaiza, that is PW36 and PW34, respectively; and the alleged presence of the second and third appellants at house No 80B Drive-In on 26 December 1982, and on 27 December 1982, as well as 28 December 1982; while on the evidence of Ibrahim Issa (PW96) these persons never came to that house. H

We agree that on the authority of Aneriko's case a confession which contains material falsehoods, knowingly made by the person confessing, is valueless unless such falsehoods can be separated from the body of the confession. Can it be said that in the present case these falsehoods were knowingly made by the fifth appellant? We do not I think so. The fifth appellant was not among the originators of

the coup plot and could therefore easily have been duped into believing that foreign A countries were involved in the coup plot and duped also into believing that Major General Silas Mayunga was involved. It would seem that the originators of the coup plot were engaged in recruitment propaganda to win followers.

With regard to the other falsehoods, they appear to have one common factor. They all B relate to specific dates when certain things are said to have happened or to have been done. Since the fifth appellant in his confession appears to have participated in a number of conspiratorial meetings, there is every likelihood of confusing dates and events, and C thereby giving rise to the misleading impression of lying. Under those circumstances, it cannot be said that the fifth appellant knowingly told lies on these matters. We are satisfied that the confession of the fifth appellant is not disqualified by the rule in Aneriko's case and can therefore be relied upon to inform us about the names of D persons the first appellant recruited from the airwing. We are satisfied, on the evidence, that it was the first appellant who recruited the fifth, sixth and seventh appellants into the coup plot. However, the recruitment exercise was not made a specific overt act charged against the first appellant. It only aggravates the offences charged. E

Next we consider the recruitment by the first appellant of PW11 which constituted overt act number 7 in Count 3. The relevant evidence on this point is that of the extra-judicial statement of the first appellant and the evidence of PW11. In his extra-judicial statement, F the first appellant does not specifically mention the person whom he recruited from the Commando Units in Zanzibar, but this lacunae in the evidence is filled in by the testimony of PW11. We

have already considered the evidence of PW11 at length in connection with the common criticisms made by the learned advocates concerning the G prosecution witnesses who claimed to have reported the conspiracy to the authorities. While so considering, we found PW11 to be a credible and reliable witness. His evidence, to the effect that the first appellant visited Zanzibar several times in December 1982, is fully supported by other prosecution witnesses, such as PW12 (Mchuwao H Safisa) and PW13 (Sunday George Matola) as well as by the unsworn testimony of the fourth appellant. On the basis of the testimony of PW11 supported as it is by this other evidence, there can be no doubt that the first appellant recruited PW11. Thus the overt act charged as number 7 in Count 3 is fully proved against the first appellant. I

The next arrow in the prosecution arsenal aimed at the first

appellant is an allegation to the effect that apart from the first appellant's participation in A the recruitment exercise, he also participated in a number of conspiratorial meetings aimed at consolidating the conspiracy. The evidence of PW41, that is, Hope Banyikwa, shows that the first appellant hosted a number of meetings at house No 80B Drive-In. B She, of course, does not know the nature of those meetings, since she was not one of the participants and was not allowed to hear what went on. The main criticism directed against PW41's evidence concerning these meetings was made by Mr Lakha to the effect that she was uncertain about the exact dates when the meetings took place. We C think there is a reasonable explanation to this uncertainty. The witness was testifying about events that took place many years back, and because of that, her memory could have been afforded by the long lapse of time. Now, were these meetings conspiratorial?

The prosecution case relied mainly on the extra-judicial statements of the fifth and sixth D appellants. The extra-judicial statement of the fifth appellant implicates the first appellant in a number of conspiratorial meetings at the Drive-In house towards the end of December 1982. This extra-judicial statement of the fifth appellant places these meetings on the 26, 27 and 28 December 1982; and clearly shows that they were E conspiratorial except that the one on 26 December 1982 was preceded by a Christmas party, and did not become conspiratorial until the innocent guests had left. The extra-judicial statement of the fifth appellant tallies with that of the sixth appellant except that the extra-judicial statement of the sixth appellant does not disclose the nature of F those meetings. On the appellant's side, it has been submitted to the effect that the evidence of PW41, Hope Banyikwa, is inconsistent with these extra-judicial statements concerning the dates when the alleged meetings were held. It has however been pointed G out that PW41 is uncertain about the dates, because of the long lapse of time. PW41's uncertainty cannot therefore be used to contradict the information given in the two extra-judicial statements which were made not long after the event. But can these two extra-judicial statements be safely acted upon? H

We have already dealt with the extra-judicial statement of the fifth appellant and arrived at an affirmative answer. With regard to the extra-judicial statement of the sixth appellant, similar grounds of complaint were raised concerning the falsehoods contained I therein. We think the

answers to these complaints are the same as those given in respect of the extra-judicial statement of

the fifth appellant. That is not however the end of the problem. PW41 is not the only A witness to these meetings. There was Ibrahim Issa (PW96) who testified about participating in these meetings and to the effect that they were not conspiratorial but purely social. The learned Principal State Attorneys appeared to provide the answer to B this problem. They pointed out in their submissions to the effect that the meetings in respect of which PW96 testified could not be the same meetings in respect of which PW41 testified. Those in which PW96 participated were attended by about two guests, whereas those in respect of which PW41 testified were attended by about five to six C persons. This larger group of people tallies substantially with the meetings mentioned in the two extra-judicial statements. On the totality of the evidence, there is no doubt that these larger meetings which the first appellant hosted at house No 80B Drive-In were conspiratorial meetings concerning the coup plot and served the purpose of consolidating the original conspiracy. D

Another meeting in which the first appellant is said to have taken part was at house No 1127 along Chole Road in Masaki, Dar es Salaam. On the evidence of PW36, Steven Buberwa, and PW43, Oscar George Ngaiza, this meeting which took place on two E consecutive days was hosted by Pius Mutakubwa Lugangira alias Father Tom. There is a conflict of evidence by these two witnesses concerning the exact dates of these meetings. But bearing in mind the fact that these witnesses were testifying about events which took place many years back, such conflict is to be expected. In substance, the F two witnesses are in agreement that the meeting took place some time towards the end of December 1982. The only evidence which implicates the first appellant with participation in the meetings on the two consecutive days at house No 1127 along Chole Road, Masaki, is to be found in the extra-judicial statements of the fifth, sixth and G seventh appellants. These statements also are the only evidence which disclose the nature of the meetings as being conspiratorial. We have already dealt with the veracity of the extra-judicial statements of the fifth and sixth appellants. It is now the turn of the extra-judicial statement of the seventh appellant.

There are three major complaints concerning the veracity of this extra-judicial statement. H The first two concern the alleged involvement of foreign countries in the coup plot as well as the alleged involvement of Major Silas Mayunga in the same coup plot. We have already dealt with these complaints, particularly in respect of the extra-judicial statement I of the fifth appellant. The answers there apply here.

The third complaint concerns the alleged recruitment of the seventh appellant by the A fourth, fifth and sixth appellants at New Africa Hotel in the evening of 31 December 1982. It is said that this cannot be true since the seventh appellant was, at the material time, celebrating the end of the year at Msasani Officers' Mess. According to the extra-judicial B statement of the seventh

appellant, the recruitment took place at New Africa Hotel between 5.15 and 6.00 pm. According to PW8, that is, Staff Sergeant Boniface Temu, the seventh appellant was at Msasani Police Officers' Mess at about 6.00 pm. This time given by PW8 is, in our view, no more than an estimation made many years after the C event. It cannot, therefore, be taken at face value. There is also the evidence of PW9, Cpl Mussa Ramadhani, the Officers' Mess attendant, who testified to the effect that on 31 December 1982 the seventh appellant came to the Officers' Mess at about 8.00 pm. This again is at best no more than an estimate made by the witness many years after D the event. In any case it is not inconsistent with the allegation that the seventh appellant was recruited at New Africa Hotel between 5.15 and 6 pm as stated in the extra-judicial statement of the seventh appellant. It is also to be noted that, unlike the testimony of PW8 and PW9, the extra-judicial statement of the seventh appellant was made not long E after the event and is therefore in that respect more relivable. For this reason, it cannot be said that on the evidence adduced by the prosecution, the extra-judicial statement of the seventh appellant is false when it states that the seventh appellant being recruited at F New Africa Hotel between 5.15 and 6 pm. On the basis of the provisions of s 33(1) of the Law of Evidence Act 1967, the extra-judicial statements of the fifth, sixth and seventh appellants can be taken into account against the first appellant in respect of his participation in the meetings at house No 1127 along Chole Road in Masaki, Dar es G Salaam, if there is a substratum of evidence adduced against the first appellant which can be reinforced by these extra-judicial statements.

Do we have such substratum of evidence against the first appellant? The answer must be in the negative. Apart from these extra-judicial statements, there is no other evidence H which places the first appellant at the meeting in house No 1127 Chole Road, Masaki, Dar es Salaam. We note, however, that this meeting along Chole Road was not averred by the prosecution as a specific overt act against the first appellant. So failure to prove it is not a fatal setback to the prosecution case against the first appellant. I

The position concerning the meeting which is alleged to have been

the last one and to have taken place at a house in Kinondoni Makaburini is the same as A that at house No 1127, Chole Road. As to the activities of the first appellant and his friends at the house at Kinondoni Makaburini, the prosecution case does not suggest any conspiratorial activities there. Undoubtedly, there is overwhelming evidence to show B that the first appellant visited this house many times with his friends but for social purposes such as meals and drinks.

The first appellant has put up an alibi as part of his defence. The alibi covers the period between 31 December 1982 and 5 January 1983. During that period he claims to have C been away from Dar es Salaam and was at Mkaramo in Tanga region, where he had gone, together with DW1, that is, Abdallah Hassan Enzi, to pay condolences to his bereaved mother who had lost a husband. The learned Jaji Kiongozi dismissed this alibi as bogus. It was pointed out in the course of this appeal by learned Principal State D Attorneys that this alibi by the first appellant is groundless. This submission is based upon the conduct of the first appellant towards one Issa

Akida, that is PW30, who testified to the effect that he met the appellant in Dar es Salaam on 6 January 1983, and spent a night with the first appellant at Kunduchi Beach Hotel. PW30 had come from E Mkaramo where the first appellant's mother lived. On the evidence, the first appellant made quite a lot of inquiries about his mother. It is obvious from the nature of the inquiries that the first appellant had not seen his mother at Mkaramo for quite a long time. The relevant part of the evidence of PW30 was not put in doubt under F cross-examination by advocate for first appellant. On the basis of this evidence, we agree with the view of the learned Jaji Kiongozi that the first appellant's alibi is bogus.

The next set of prosecution arrows directed at the first appellant concerns the allegation G that the first appellant purchased some batteries for walkie talkie radios intended for use in execution of the coup plot. Also there is the allegation concerning his efforts to immunise himself against harm from bullets through the use of charms. The prosecution case in respect of the purchase of batteries for use in walkie talkie radios H rests on the evidence of PW1 and PW79. The evidence of PW1 is to the effect that on 7 January 1983 the first appellant purchased a set of batteries and informed PW1 that they were for use in walkie talkie radios in connection with the coup plot. His evidence is also to the effect that after the purchase of the batteries, PW1 and the first appellant visited I the home of the sixth appellant. The evidence of PW79, is to the effect

that a set of walkie talkie batteries was found at the home of the sixth appellant in the A course of a police search after his arrest. On the basis of this evidence, we are satisfied that the first appellant did purchase the said batteries and left them at the home of the sixth appellant, and for that reason we find overt act number 5 in Count 3 proved against the first appellant. B

As to the charms against harm by bullets, the prosecution case rests on the evidence of the two witchdoctors, that is PW22, Mohamed Omari Hatibu and PW23, Bakari Daudi Shoka. The learned trial Jaji Kiongozi accepted the evidence of these witnesses on this point. Mr Lakha has strongly submitted in this appeal that the evidence of these C witnesses ought not to have been accepted since they were self-confessed liars in that they knew that the charms which they purported to provide to the first appellant and his companion would not help them. And yet they proceeded to cheat the first appellant and his companion to obtain their money. D

We think in a case like this one involving the use of witchcraft, witchdoctors are invariably the most competent witnesses to testify about their tricks, since they are directly involved in the matter. The weight to be attached to their evidence would depend E in each case on the totality of the evidence relevant to the issue at hand. It has to be borne in mind that there is still a large section of the population in our country which is inclined to seek help from witchdoctors, as a matter of course, whenever faced with problems or challenges of life. The efficacy of such conduct is a matter of controversy F outside the scope of this case. What we have to ask ourselves is whether the matters testified to by PW22 and PW23 are probable. Is it probable for the first appellant and his companion to seek charms to immunise them against harm by bullets? Bearing in mind about what happened during the Maji Maji uprising in our history, and also

what G happened recently in connection with Alice Lakwena's Holy Spirit Movement in Eastern Uganda, we are satisfied that it is probable for the first appellant and his companion to seek such charms. But can we safely rely on the evidence of PW22 and PW23 to go beyond mere probability and find as a fact that the first appellant and his companion H actually sought such charms?

Mr Lakha has submitted that PW22 and PW23 are at least, on the totality of the evidence, accomplices since they did not report the treasonable conspiracy to the authorities. There is merit in this submission, since the first appellant also faced a I charge of misprision of treason in the alternative. The evidence leaves no doubt that the first appellant and his companion made a full confession to

these witnesses in the course of their request for charms to protect them against harm A by bullets. We are satisfied on the evidence that PW22 and PW23 are accomplices whose evidence needs corroboration.

So we have to look for corroboration. We find it in the evidence of PW1, whom we have B already found to be a credible witness. His evidence on this aspect of the case particularly under cross-examination is to the effect that the drove the first appellant and his companion to see the two witchdoctors. On the evidence of PW22 and PW23 supported by that of PW1 we are satisfied that the first appellant and his companion C actually sought charms to immunise themselves against harm by bullets which they might face in the course of implementing the coup plot. So overt act number 6 in Count 3 is proved against the first appellant. It is ironical that the first appellant's companion, D that is, Mohamed Tamimu alias Martin Tamimu was shot dead not long afterwards. This incident demonstrates the impotence of charms against bullets.

On the side of the first appellant, it was submitted by Mr Lakha that he did not have a fair trial; since he was driven into a position by certain remarks made by the Jaji Kiongozi on the basis of which it was pointless for him to defend himself in the main trial. It was for E that reason that he elected to remain silent. The relevant remarks appear in the ruling of the Jaji Kiongozi made in the trial within the trial of the first appellant. In concluding the ruling to admit the extra-judicial statement of the first appellant, the learned Jaji Kiongozi stated as follows: F

> `First accused's demeanour and bearing in the witness box left me with a clear impression in my mind that he is the type of person who can choose to say anything to suit his convenience.' G

This description of the character of the first appellant apparently disarmed him and when his turn to defend himself came round, and was informed about his rights in his defence, he informed the court in Kiswahili as follows: H

> `Nimeshasema awali kwamba sina utetezi wowote wa kutoa zaidi katika Mahakama hii kufuatana na remarks ambazo zimetolewa dhidi yangu wakati wa ruling yangu kwenye trial within a trial.'

We are satisfied that the learned Jaji Kiongozi erred in law in making a finding on the I general character of the first appellant in a trial within a trial. The ruling ought to have been confined to the

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matter in issue, that is, the admissibility of the extra-judicial statement made by the first A appellant. The issue of general character of the first appellant lay outside the scope of the trial within the trial, and fell within the scope of the main trial. We have now to ask ourselves whether this irregularity on the part of the learned Jaji Kiongozi had the effect B of denying the first appellant a fair trial. We have examined the record of the proceedings very closely.

It is apparent that the defences of the first appellant were fully disclosed under cross-examination of the material witnesses for the prosecution and also through the single defence witness who was called by the first appellant to testify to the alibi. It is C apparent also that neither the assessors nor the Jaji Kiongozi took into account the general character of the first appellant in their view of the whole case. Moreover, these remarks were made in the absence of the assessors, whereas the defence of the first appellant was expected and did actually proceed in the presence of the assessors when D the single defence witness testified to the alibi. under these circumstances, we do not think that the first appellant was denied a fair trial. The appellant appears to have over-reacted in response to the remarks made by the Jaji Kiongozi at his trial within the trial, and he consequently denied the assessors and the Jaji Kiongozi the opportunity to E hear him in his defence.

We now turn to the case in respect of the second appellant. The prosecution case against the second appellant is two-pronged. The first thrust seeks to implicate the second appellant in the conspiratorial meetings at house No 80B Drive-In as well as at F house No 1127 along Chole Road, Masaki, Dar es Salaam, and at a house at Kinondoni Makaburini. The second thrust concerns treasonable declarations allegedly made by him to PW2, Lt Iddi Mushi Stambuli, in Arusha. With regard to the second appellant's alleged participation in the meetings at house No 1127 Chole Road, and the house at Kinondoni G Makaburini, the only evidence on this point consists of the retracted extra-judicial statements of the fifth, sixth and seventh appellants. These retracted confessions can only be taken into consideration by virtue of the provisions of s 33(1) of the Law of Evidence Act, to reinforce other evidence adduced against the second appellant. There H is, however, no substratum of evidence which can be reinforced by these extra-judicial statements. In other words, these extra-judicial statements have no leg upon which to stand. The prosecution case, therefore, insofar as it concerns conspiratorial meetings at house No 1127 Chole Road, and at the house at Kinondoni I Makaburini falls to the ground.

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As to the meetings at house No 80B Drive-In, the extra-judicial statements of the fifth A and sixth appellants can be taken into consideration to reinforce the evidence of PW41, that is, Hope Banyikwa, who identified the second appellant as one of the persons who participated in the meetings. The appellant's defence on this point is a general denial. B However, the extra-

judicial statements of the fifth and sixth appellants, and especially that of the fifth appellant, clearly show that these meetings were conspiratorial in nature. On the basis of the evidence of PW41, supported by these extra-judicial statements, there can be no doubt that the second appellant joined the conspiracy at some stage C after it was conceived and hatched up. This means that the overt acts of conspiracy charged in Counts 1, 2 and 3 are proved against the second appellant.

With regard to the treasonable declarations alleged to have been made by him in Arusha, the only cogent prosecution evidence on this point is that of PW2. D This witness and his testimony has already been dealt with in connection with his reporting of the conspiracy to the authorities. On the defence side, there is an alibi to the effect that the second appellant was at the material time in Dar es Salaam and did not go to Arusha. But this alibi appears to be inconsistent with the line adopted in cross-examining E PW2 in that respect. It was put to this witness that the second appellant had gone to Arusha on a return air ticket and could not therefore have gone to the bus stand to make arrangements for travel back to Dar es Salaam. On p 155 of the stenographers' transcript of the proceedings, it is recorded in Kiswahili: F

`Lakha: Basi wewe ni muongo. Ikiwa yeye amerudi kwa regular flight, basi wewe ni muongo?

Stambuli: Mimi sio muongo.

Lakha: Sasa huko Bus stand alikuwa anafanya nini? G

Stambuli: Labda baada ya kukosa ticketi ya bus akaamua kurudi kwa ndege.

Lakha: Lakini alikuwa na ticket ya regular flight bwana.'

We are of the view that on the basis of this line of cross-examination of PW2, the alibi H put forth by the second appellant falls to the ground.

We are satisfied that the second appellant did make the treasonable declaration as stated by PW2. But does the declaration amount to an overt act? I

Mr Jadeja, learned advocate, made submissions in respect of the ninth appellant which are relevant also to the second appellant. The

submissions were to the effect that in law mere words do not amount to overt acts on a A treason charge. He cited Hale's Pleas of the Crown published in 1778. On p 115 of vol 1 there appears the following statement in old English:

B `Therefore though this be regularly true, that words alone make no treason or an overt act, yet it hath these alleys and exceptions.'

Eight exceptions are mentioned therein. One of the exceptions concerns words which explain treasonable conduct. This exception would cover declarations made by the C second appellant to PW2, because the declaration explained why the second appellant had gone to Arusha. According to him, he had gone to Arusha to seek ammunition to be used in the coup plot. On the basis of this evidence, there can be no doubt that overt act number 2 charged in Count 1 is proved against the second appellant. D

We next turn to the case in respect of the third appellant. The prosecution case is on one front, and that concerns the allegation that the third appellant participated in conspiratorial meetings held at house No 80B Drive-In and also at house No 1127 Chole Road, and the house at Kinondoni Makaburini. E The prosecution evidence in respect of the meetings at house No 1127 Chole Road, and at the house in Kinondoni Makaburini is similar to that adduced against the second appellant. It consists only in the extra-judicial confessions of the fifth, sixth and seventh appellants. These confessions can only be taken into account to reinforce a substratum of evidence adduced against the third F appellant. Is there such substratum of evidence? As in the case of the second appellant, there is none. The prosecution case therefore falls to the ground in so far as the meetings at house No 1127 Chole Road, and at the house in Kinondoni Makaruni are G concerned. We remain with the meetings at house No 80B Drive-In. Here there is a substratum of evidence given by PW41 implicating the third appellant with participation in the meetings. The extra-judicial statements given by the sixth and seventh appellants can therefore be taken into consideration to reinforce the evidence of PW41. H Before we can do so, however, we have to consider the case for the defence on this aspect.

On the third appellant's side, it is alleged that at the time when the conspiratorial meetings are said to have taken place, he was busy studying at the Dar es Salaam University where he was preparing for his final examinations. I The third appellant did not call any one from the University of Dar es Salaam to show whether the

third appellant was so busy that he could not have attended the conspiratorial meetings. A The failure by the third appellant to call such a witness to support him clearly undermined his alibi. This position was stated by this Court in the case of Lusabanya Styantemi v Republic (7).

There is another reason given by the Jaji Kiongozi in his judgment which shows that the B third appellant's defence cannot hold water. The learned Jaji Kiongozi stated:

> `If he was so busy, why did he so hurriedly leave the country to Kenya. Apparently Maganga did not C think it important to tell the Court why he left his studies and fled to Kenya when he defended himself.'

These views of the learned Jaji Kiongozi were of course not based on the evidence adduced before the assessors, but on evidence given by the third appellant himself in D his trial within the trial concerning the admissibility of a statement he made to the police at Dodoma. The evidence is contained in answers given by the third appellant under cross-examination. Mr Lakha submitted before us that it was improper for the learned E Jaji Kiongozi to take this evidence into account as it was not given in the main trial, but in a trial within a trial in the absence of the assessors. A Privy Council decision was cited in support of this contention. This is the case of Wong Kam-ming v R (8). At 943 of the relevant report their lordships stated: F

> `As part of this case on the main issue, may the prosecution lead evidence regarding the testimony given by the accused on the voire dire. As already related the trial judge originally thought that this question required a negative answer. But he was led to change his mind by the decision in R v Wright G where the Supreme Court of South Australia held that the Crown was

entitled to lead such evidence subject to the discretion of the trial judge to disallow it. But the weight of Judicial authority is against such conclusion. The earliest relevant decision appears to be that of the Federal Supreme Court of Southern Rhodesia in Chitambala v R where Clayden, ACJ said:

H "In any criminal trial the accused has the right to elect not to give evidence at the conclusion of the crown case. To regard evidence given by him on the question of admissibility as evidence in the trial itself would mean either that he must be deprived of that right if he wishes properly to contest the admissibility of the statement or that to preserve that right he must abandon I another right in a fair trial, the right to prevent inadmissible statements being led in evidence against him. To me it seems clear that deprivation of

A rights in this manner and a change in a trial of admissibility to a full investigation of the merits cannot be part of the fair criminal trial."

Yet in the instant appeal counsel for the Crown felt constrained to submit that even were the trial judge to exclude a confession on the ground that torture has been used to extort it, any damaging B statement made by the accused on the voire dire could nevertheless be adduced as part of the prosecution case. Boldness could go no further.

Fortunately, for justice, their lordships have concluded that where the confession has been excluded, the argument against ever admitting such evidence as part of the Crown case must prevail. But what C if the confession is held admissible? In such circumstances, it is unlikely that the prosecution will need to do more than rely on the confession itself. Nevertheless, in principle should they be prevented from proving in addition an admission made by the accused on the voire dire? This question has exercised their lordships a great deal. But even in the circumstances predicated it is D preferable to maintain a clear distinction between the issue of voluntariness, which is alone relevant to the voire dire and the issue of guilt falling to be decided in the main trial. To blur this distinction, can lead, as has already been shown, to unfortunate consequences, and their lordships have therefore concluded that the same exclusion of the evidence regarding the voire dire proceedings E from the main trial must be observed regardless of whether the challenged confession be excluded or admitted.'

It is apparent that the decision of the Privy Council in Wong's case differed from the earlier position that had prevailed in a number of jurisdictions including England and F Wales concerning the matter. The earlier position is illustrated by the case of R v Hammond (9).

According to the earlier position, incriminating statements made by an accused person at a trial within a trial could be used against him in the main trial. The prevalence of this G earlier position was referred to in Wong's case when their lordships of the Privy Council stated at 942:

`Although much criticised, that decision has frequently been followed in England and Wales and in many other jurisdictions.' H

The question which arises in this case is whether in this country we should adopt the position as laid down by the Privy Council in Wong's case or follow the earlier position which prevailed a

number of Commonwealth jurisdictions as illustrated by Hammond's I case? We think the position in Hammond's case is more appropriate to

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this country where criminal justice is required to be administered not as a game of A football but as a serious business of acquitting the innocent and convicting the guilty in a reasonable and sensible manner according to law. This Court has emphasized this approach in a recent case, that is, the case of DPP v Peter Rowland Vogel (10). B

We notice that the decision in Wong's case is predicated upon the principle that an accused person ought not to be placed in a dilemma where he has to choose between his right to challenge the admissibility of evidence against him and his right to remain C silent in his defence in the main trial. We also notice, however, that the right of the public to see justice done by the Courts in a reasonable and sensible way according to law was not considered at all by the Privy Council in Wong's case. We think that consideration of this right of the public to see justice done is quite fundamental, since D invariably a trial within a trial takes place in public, and evidence given within such a trial is known to the public, notwithstanding the absence of the jury or assessors as the case may be. Since the authority of the courts depends ultimately upon public confidence in the courts, it is important that a proper balance be maintained between the rights of an E accused person on the one hand and the rights of the public on the other.

In the present case, we have evidence adduced by the third appellant in his trial within the trial, and which was properly admitted within the scope of such a trial, to the effect that he and the second appellant fled to Kenya upon learning that the police were looking F for him and his companion. This evidence was given in the presence of members of the public and the appellants, though in the absence of the assessor. What would the public and the appellants think of our courts if it was said by the Trial Judge that, through some legal fiction, such evidence though properly admitted in the trial within the trial, did G not exist for purposes of determining the guilt of the appellant? They would be justified, in our view, in thinking that the trial was just a game and not a serious business of determining guilt and innocence. Such an attitude, particularly on the part of the public, is H dangerous to the rule of law. Our legal system ought not to encourage it.

The prosecution case against the fourth appellant has two fronts: The first thrust concerns the allegations that he, together with the first appellant, was involved in the I recruitment of PW11, that is, Captain Albert Ballati. The second thrust concerns the allegation that he participated in the conspiratorial meetings at house No 80B

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Drive-In as well as at house No 1127 along Chole Road, in Masaki, Dar es Salaam, and A at a house in Kinondoni Makaburini. Let us start with the first allegation. The evidence on this aspect is similar to that adduced against the first appellant, although in addition there is the unsworn testimony given by the fourth appellant in his defence. It is common B ground that

the fourth appellant visited Zanzibar several times in December 1982. He claims, on his part, that his visits were innocently connected with his purchase of building materials. But the evidence of PW11 clearly implicates him to the same extent as the first appellant with the recruitment of PW11. On the basis of this evidence, we are C satisfied that the fourth appellant was involved in the recruitment of PW11. Therefore, overt act number 2 charged in Count 3 is proved against the fourth appellant.

The evidence concerning his participation in conspiratorial meetings at house No 1127 Chole Road, and at the house in Kinondoni Makaburini, consists solely of the retracted D confessions of the fifth, sixth and seventh appellants. These confessions can be taken into consideration to reinforce an existing substratum of evidence against the fourth appellant. There is, however, no such substratum of evidence and therefore this allegation, which is not a subject of a separate overt act, has not been proved. What E about the meetings at house No 80B Drive-In?

We have the evidence of PW41, that is Hope Banyikwa who mentioned the fourth appellant as one of the participants in the meetings she described. The evidence of PW41 provides the necessary substratum of evidence which can be reinforced by the F confessions of the co-accused against the fourth appellant. With regard to the alibi of the fourth appellant to the effect that he could not have participated in the conspiratorial meetings as he was busy attending to his sick relative, that is one Oscar, the answer to this is that the meetings at House No 80B Drive-In took place before the fourth appellant G became tied up with attending to his sick relative early in January 1983. According to the prosecution evidence, these particular meetings at this particular place took place in December 1982. The retracted confessions of the fifth and sixth appellants, when taken into account, clearly show that the fourth appellant was one of the conspirators in H respect of this particular meetings at house No 80B Drive-In. It follows, therefore, that the overt act of conspiracy charged in Counts 1, 2 and 3 is proved against the fourth appellant. We next turn to the case in respect of the fifth appellant.

The prosecution case against the fifth appellant is also two-pronged. The first thrust I concerns the allegations that the fifth

appellant participated in the conspiratorial meetings at house No 80B Drive-In as well as A at house No 1127 Chole Road, and at the house in Kinondoni Makaburini; also at Banana Bar in Ukonga on the 4 January 1983. The second thrust concerns the allegation that the fifth appellant attempted to recruit PW46, that is, Captain Mohamed Suleiman Mape. Let us start with the first allegation. The prosecution evidence B concerning the alleged participation by the fifth appellant in the conspiratorial meetings at house No 80B Drive-In, and at the house along Chole Road in Masaki in Dar es Salaam, as well as the house at Kinondoni Makaburini, consists entirely at the extra-judicial C statements of the fifth, sixth and seventh appellants. There is, however, no substratum of evidence adduced against the fifth appellant which can be reinforced by these confessions. In her evidence, PW41 did not mention the fifth appellant as one of those D who attended the meetings at house No 80B Drive-In. As it is, these confessions have no leg upon which to stand. The prosecution case therefore collapses insofar as it concerns the allegation of

participation in conspiratorial meetings at these places. We may point out that this allegation is not a subject of a separate overt act charged against the appellant.

There remains the meeting at Banana Bar on 4 January 1983. The prosecution case E rests on the evidence of PW8, that is, Staff Sergeant Boniface Temu. We have already dealt with this witness in connection with his credibility and the report he made to the authorities concerning the conspiracy. His evidence clearly shows that the fifth appellant F was one of those who attended the mini-conspiratorial meeting at Banana Bar in Ukonga on 4 January 1983. On the basis of this evidence, the overt acts of conspiracy charged in Counts 1, 2 and 3 are proved against the fifth appellant.

As to the allegation of attempting to recruit PW46, the prosecution case rests on the G testimony of PW46 and the retracted confession of the fifth appellant himself. PW46 refused to join the plot, but he never reported the incident to the authorities. We are satisfied that on that basis this witness is liable for misprision of treason, contrary to s 41(b) of the Penal Code. Since this offence was charged in the alternative against the H fifth appellant, we hold that PW46 was no less than an accomplice whose evidence requires corroboration before it can safely be acted upon. Is there such corroboration? It has been submitted by learned Principal State Attorneys in this appeal, that the retracted confession of the fifth appellant can be used to corroborate the evidence of PW46. On I the face of it, this submission seems to go against a commonly held

belief to the effect that a retracted confession cannot corroborate other evidence, A because it also requires corroboration. But there is authority to support the contention of the learned Principal State Attorney. The case of Palalar Melaram Bassan and Wathiobia s/o Kyambuu v R (11) was cited on the point. In that case the Court of Appeal for East Africa stated at 530: B

> `As regards the learned Judge's reference to the statements of each appellant providing corroboration as against that appellant of the accomplice evidence given by Tanganyika, it is true that those statements were retracted. But we see no reason why they should not be taken into account as C corroboration of Tanganyika's evidence. It is of course a well established rule of prudence that it is unsafe to act upon a retracted confession in the absense of corroboration of the confession in a material particular....
>
> It is true that as a general rule evidence which itself requires corroboration cannot provide D corroboration for other evidence also requiring corroboration. But retracted statements are not the same quality as accomplice evidence.
>
> We think that a statement made by an accused whether amounting to a confession or not may in a proper case amount to corroboration of accomplice evidence.' E

We think the rationale for this proposition is based upon the evidential value of a retracted confession which is found by the courts to contain nothing but the truth. On the F authority of the case of Tuwamoi v Uganda at 91 supra, such confession is sufficient to support the conviction of the confessor. If a retracted but truthful confession is capable of supporting a conviction against the confessor, why should it not be capable of corroborating other evidence against the

confessor? We therefore hold that the retracted G confession of the fifth appellant which, as already found, is truthful, corroborates the evidence of PW46.

The appellant on his side does not deny meeting PW46 on the material day. He claims, however, that he did so innocently, in connection with a request by him to PW46 to H arrange transportation of some fridges from Zanzibar. The evidence of PW46, however, shows that apart from this innocent purpose, the fifth appellant subsequently attempted to recruit PW46. On the basis of the prosecution evidence, we find the allegation against the fifth appellant proved. This allegation has of course not been made an overt act on I any of the counts of treason charged. But as we have already stated, proof of an overt act which is not specifically

charged against an accused person has the effect of aggravating the offence charged A and is therefore relevant to sentencing. Let us now turn to the case in respect of the sixth appellant.

The prosecution is presented on one front only concerning the allegation that the sixth appellant participated in the conspiratorial meetings at house No 80B Drive-In, as well as B at house No 1127 Chole Road in Masaki, Dar es Salaam; and subsequently at a house in Kinondoni Makaburini. These meetings were, of course, not made the subject of a separate overt act against this appellant. The only prosecution evidence in respect of the meeting at Kinondoni Makaburini consists of the retracted confessions of the C fourth appellant and seventh appellants. In his own retracted confession, the sixth appellant is silent on the meeting at Kinondoni Makaburini. In law, the retracted confessions of the fifth appellant and seventh appellants can be meaningful only if there D is a substratum of evidence against the sixth appellant which can be reinforced by taking these retracted confessions into account. There is no substratum of evidence against the sixth appellant and the prosecution case therefore falls to the ground insofar as this particular meeting is concerned. This leaves us with the meetings at house No E 80B Drive-In and at house No 1127 along Chole Road in Masaki, Dar es Salaam.

There is the evidence of PW41, that is, Hope Banyikwa. She mentions the sixth appellant as one of the persons who participated in the meetings in respect of which she F testified. The evidence of PW41 provides the necessary substratum of evidence against the sixth appellant. The retracted confession of the fifth appellant is however relevant to these meetings. When this confession is taken into account, there can be no doubt that the sixth appellant was one of the conspirators who participated in the meetings at house No 80B Drive-In. G

As to the meeting at house No 1127 along Chole Road in Masaki, Dar es Salaam, there is the evidence of PW43, that is, Oscar George Ngaiza, who claims to have identified the sixth appellant as one of those who came to participate in the meeting on the second H day. The basis for his identification is that the sixth appellant arrived much earlier at the meeting place before any one else had come, and so PW43 had good reason to notice him. The testimony of PW43 is, however, contradicted on this point by the testimony of PW36, that is, Steven Buberwa. PW36 testified to the effect that the first person to arrive I at the meeting place on the second day was Pius Mutakubwa Lugangira. Because of this contradiction, we felt

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that it would be unsafe to act upon the evidence of PW43 regarding the identification of A the sixth appellant. The evidence, therefore, proves beyond reasonable doubt that the sixth appellant participated only in the meetings which took place at house No 80B Drive-In. These meetings are sufficient evidence of the overt acts of conspiracy charged in Counts 1, 2 and 3. B
The prosecution case against the seventh appellant is also two-pronged: The first thrust concerns the allegation that the seventh appellant recruited PW8 and instigated him to sabotage a military installation in furtherance of the conspiracy. The second thrust concerns the allegation that the seventh appellant participated in a mini-meeting at C Banana Bar in Ukonga Dar es Salaam on 4 January 1983. Let us start with the second allegation.
The prosecution case rests entirely on the evidence of PW8. We have already dealt with this witness and his testimony in connection with his report of the conspiracy to the D authorities. On the basis of the evidence of that witness, there can be no doubt that the seventh appellant participated in the mini-meeting at Banana Bar in Ukonga on 4 January 1983; and that that meeting was conspiratorial. It follows therefore that the overt acts of conspiracy charged in the first, second and third Counts are proved against the seventh E appellant.
As to the recruitment of PW8 and the instigation by the seventh appellant made to him to sabotage an important military installation, the prosecution case also rests entirely on F the evidence of this witness. In the course of this appeal, some special criticism was directed against PW8's evidence on this aspect of the case. It was submitted that PW8 gave the impression that the seventh appellant was on duty when he is said to have recruited and instigated him. With due respect to Mr Jadeja, learned advocate who G made this criticism, we think that the criticism is unjustified. Firstly, because the point was not put to PW8 under cross-examination at the trial; and secondly, because there was no evidence to suggest that the seventh appellant could not, while on leave, visit this military camp where PW8 worked. After all, the seventh appellant was normally the H man in charge of that military installation. According to PW8 his recruitment was made by the seventh appellant when they met early in the afternoon outside the military camp on 4 January 1983; and that the instigation to sabotage the military installation was made to him by the seventh appellant at Mawenzi Hotel on the evening on 6 January I 1983. The seventh appellant on his side denied recruiting or instigating PW8 as alleged by the prosecution.
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On the basis of the evidence of PW8, whom we have already found to be credible and A reliable, and on the strength of the retracted confession of the seventh appellant, which is truthful, there can be no doubt that the seventh appellant did recruit PW8 and instigated him to sabotage the relevant military installation in furtherance of the coup plot. B It follows, therefore, that overt acts numbers 14 and numbers 15 charged in Count 3 are proved against the seventh appellant. We next turn to the case in respect of the eighth appellant.
The prosecution case against the eighth appellant is on two fronts: Firstly there is the C allegation that the eighth appellant participated in conspiratorial meetings at house No 1127

along Chole Road as well as the house at Kinondoni Makaburini. Secondly, there is the allegation that the eighth appellant did sabotage a vital military installation on 6 D January 1983 in furtherance of the coup plot. We start with the first allegation. The only evidence concerning this allegation consists of the extra-judicial statements of the fifth and seventh appellants. The extra-judicial statement of the sixth appellant is silent as far as the eighth appellant is concerned. Now, these retracted confessions of the fifth and E seventh appellants can be taken into consideration only to reinforce an existing substratum of evidence adduced against the eighth appellant concerning his participation in these meetings. There is no substratum of evidence adduced against the eighth appellant on this aspect of the case. This means that the retracted confessions of the fifth and seventh appellants have no leg upon which to stand, and the prosecution F case therefore insofar as it concerns conspiratorial meetings at house No 1127 along Chole Road and the house at Kinondoni Makaburini falls to the ground. These meetings cannot, therefore, be used as evidence of the eighth appellant's involvement in the G conspiracy charged. We must look for other evidence of conspiracy, if any.

We go back to the evidence of PW8, that is, Staff Sergeant Boniface Temu. He testified to the effect that in the evening of 6 January 1983 he and the seventh appellant went to H Mawenzi Hotel where they saw the eighth appellant. After the seventh appellant had some conversation with the eighth appellant, he instructed PW8 to sabotage a vital military installation the following day, and required PW8 to report to the eighth appellant about the results of his assignment. He further testified to the effect that the following I day on 7 January 1983, after sabotaging the relevant military installation, he reported to the eighth appellant and the eighth appellant instructed

him not to sleep that day before seeing the seventh appellant. The A conduct of the eighth appellant as disclosed by the evidence of PW8, clearly shows that he was acting in concert with the seventh appellant, who, as already found, was one of the conspirators. By virtue of the provisions of s 12 of the Evidence Act 1967, the B conspiratorial conduct of the seventh appellant in respect of which the eighth appellant acted in concert, can be used as evidence to show that the eighth appellant was also a party to the same conspiracy. On his side, he denies involvement. However, the evidence of PW8 is so compelling that we are led to find that the overt acts of conspiracy charged in Counts 1, 2 and 3 are proved against the eighth appellant. C

As to the allegation of his sabotaging the relevant military installation, it is common ground that on 6 January 1983, the eighth appellant visited Battery No 2 and handled the potential meters of that battery. It is common ground also that the battery then appeared D to be very defective. This was at about 10.30 am. Evidence was given at the trial by PW31, that is, Captain Shabani, and PW32, that is, Lt Christopher Kyariga, to the effect that earlier that day in the morning at about 7.20 am the installation had been checked and found to be functionally in good working order. Thereafter, according to the evidence E of PW31 and PW34, that is Major Henry Jeremia, some Russian experts came to the installation and they left after being informed that everything was in good working order. According to PW31, the eighth appellant thereafter

appeared at the scene at about 10.30 am. He handled the potential meters by moving them from left to right, for a declared F purpose of checking the functioning of the installation. The installation was then seen to be very defective. The question then arises, how could this serious defect arise in the light of what had gone before the arrival of the eighth appellant? The prosecution contends that the eighth appellant must have dislocated the installation under the guise G of carrying out a normal checking. The eighth appellant denied this contention. The appellant testified in his defence that he went to check the installation at the material time to enable him to give an accurate report to a special meeting of the regiment which was arranged to take place that day to discuss matters of range practice in which the H installation in question was to be used. This testimony was, however, contradicted by the testimony of PW34 and PW35, that is Lt Colonel Mataji, who was then the Commanding Officer in charge of the relevant air defence regiment. The evidence of I these witnesses shows that the meeting in question had nothing to do with discussions concerning range practice, but was an ordinary executive

meeting of the regiment. Moreover, there is an inherent flaw in the testimony of the A eighth appellant. According to him there was a second installation which was to be used in the range practice. This was Battery No 4. The eighth appellant did not check this installation before going to the meeting in question. If the purpose of checking the other B installation, that is, Battery No 2 was to enable the eighth appellant to give an accurate report about the installations that were going to be used in the range practice, how accurate could such a report be said to be without covering the condition of Battery No 4? His testimony on this point is not cogent, and consequently his line of defence on this point collapses. C

There is however a second line of defence on the side of the eighth appellant. It is to the effect that sabotaging Battery No 2 was pointless since the air defence system could have had no role in the coup plot. We think this line of defence is untenable. The D prosecution case, supported by evidence, is to the effect that the conspirators intended to place the air defence system of the City of Dar es Salaam in the hands of fellow conspirators; and for that purpose they intended to move standby situation from Battery No 2 to Battery No 1 where the seventh appellant was in charge. There is evidence also E to the effect that at the material time the remaining batteries, that is, Battery No 3 and Battery No 4 were not in working condition. Undoubtedly, the conspirators would not have failed to realise the importance of having control of the sky over the city of Dar es Salaam. It was necessary to cover the eventuality of a counter coup from the air. In that F respect, the evidence given in the extra-judicial confessions of the fifth and seventh appellants which show that under the coup operation plan, Dar es Salaam International Airport was to be secured by the conspirators on the fateful day is significant.

On p 319 of the stenographers' record of the proceedings, there is evidence given by G PW32, that is, Christopher Beatus Kyariga, to the effect that a serious defect known as `Mistuning' could be occasioned to an air defence battery by mishandling the potential meters, such as rotating them higgledly-piggledly. It is common ground that a mistuning H of the air defence

battery concerned was reported by Russian experts who were called subsequently to rectify the defect. On our evaluation of the totality of the evidence, we are satisfied that the eighth appellant must have mishandled the potential meters and rendered the installation defective in furtherance of the conspiracy. We thus find overt I act number 20 charged in Count 3 proved against the eighth appellant.

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We finally turn to the case in respect of the ninth appellant. The prosecution case A against the ninth appellant is presented only on one front which concerns the allegation that the ninth appellant made treasonable declarations to PW3, that is, Lt Augustine Pancras Ndejembi. We have already dealt with the credibility of this witness in B connection with his testimony about reporting the conspiracy to the authorities. That evidence shows that the ninth appellant was a party to the conspiracy. On his side, he denies any involvement. In his unsworn testimony given in his defence, he claims to have come to Dar es Salaam not in connection with any coup plot, but for medical C treatment. DW1, that is, Lt Charles Chabruma gave evidence on his side. His unsworn testimony and the testimony of DW1 shows only that the ninth appellant had medical treatment at Lugalo Military Hospital in Dar es Salaam early in November 1982. The evidence does not show that he was still undergoing medical treatment when he met D PW3 towards the end of December 1982 and the beginning of January 1983. There is a suggestion in his unsworn testimony to the effect that he remained in Dar es Salaam until the time of his arrest, waiting to appear before a medical board, which was to determine whether or not the ninth appellant should continue serving in the army. E This suggestion, however, could not be tested under cross-examination as the ninth appellant testified without being sworn.

In our view, it is no more than a suggestion and is completely overwhelmed by the evidence of PW3. We are quite satisfied that the ninth appellant made the treasonable F declarations as testified by PW3.

Mr Jadeja, learned advocate, has submitted in the course of this appeal that as a matter of law the declaration made by the ninth appellant to PW3 does not amount to an overt act. We have already dealt with this point in respect of one of the appellants, but there is G one aspect which we need to point out here. Although it is correct to say that in law, words as a general rule do not constitute overt acts, we think that that legal position applies only to treason by individual persons. It does not apply to treason by more than one person acting under a conspiracy. This is because in law the conspiracy itself H constitutes an overt act and a conspiracy is usually expressed by words spoken by the conspirators.

There is a further point here. The treasonable declarations made by the ninth appellant to PW3 are not only evidence showing that he was a party to the conspiracy, they also I show why the ninth appellant left Nachingwea, where he was normally posted, and

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came to Dar es Salaam. On p 40 of the Judge's notes of the proceedings PW3 testified: A

`He said he had come to Lugalo from Nachingwea on the pretext that he was being sick and was being treated at Lugalo.' B

This declaration, therefore, falls within the exceptions listed in Hale's Pleas of the Crown cited earlier, and was properly charged as a separate overt act against the ninth appellant.

We now turn to consideration of the guilt of each of the appellants. In respect of the first C appellant, the learned Jaji Kiongozi found the overt acts of conspiracy charged in Counts 1, 2 and 3 proved against the first appellant. We have found the same. The overt acts numbers 2, 5, 6 and 7 in Count 3 were also found established in the court below. We have also come to the same conclusion. We have not considered the overt acts D which were not established at the trial since no appeal was made by the prosecution.

As to the second appellant, the overt acts of conspiracy charged in Counts 1, 2 and 3 as well as overt acts number 2 in Count 1 and number 10 in Count 3 were found established by the trial court. We have also found the same in this appeal. E

With regard to the overt acts concerning the third appellant, the trial court found established the overt acts of conspiracy charged in Counts 1, 2 and 3. There was no other overt act concerning him. We have also come to the same conclusion. F

Turning to the overt acts concerning the fourth appellant, the trial court found established the overt acts of conspiracy charged in Counts 1, 2 and 3 as well as overt act number 7 in Count 3. We have also come to the same conclusion.

With regard to the overt acts concerning the fifth and sixth appellants, the trial court G found established against each of these appellants the overt acts of conspiracy charged in Counts 1, 2 and 3. Similarly overt act number 13 was found established against the fifth appellant. We have come to the same conclusion concerning the overt acts of conspiracy, but we have not found sufficient evidence in respect of overt act number 13 in Count 3. H

We turn next to the seventh appellant. The trial court found established the overt acts of conspiracy charged in Counts 1, 2 and 3. Similarly overt acts numbers 14 and 15 charged in Count 3 were found established. We have also come to the same conclusion. As to the eighth appellant, the court below found established the overt acts I of conspiracy charged in counts 1, 2 and 3 as well as overt

act number 20 in Count 3. We have also arrived at the same conclusion. A

Finally, we turn to the overt acts concerning the ninth appellant. The court below found established the overt acts of conspiracy charged in Counts 1, 2 and 3. We have also come to the same conclusion. B

The learned Jaji Kiongozi proceeded to convict each of the appellants upon proof of the overt acts concerned without considering the other ingredients of the offence of treason. With due respect, this was an error on his part. Proof of an overt act on a charge of treason-contrary to s 39(2)(a) of the Penal Code does not necessarily lead to a C conviction. The court must also satisfy itself that the accused had the appropriate intention and was under allegiance to the United Republic at the material time. In the present case, there can be no doubt on the evidence

that each of the appellants intended to cause or effect the illegal purposes of the treasonable conspiracy while D under allegiance to the United Republic. The convictions therefore cannot be disturbed by this Court. We now turn to the sentences imposed by the trial court.

Each of the appellants was sentenced to life imprisonment. The maximum penalty for the offence of treason is death. It has been argued by learned advocates for the E appellants that the sentence of life imprisonment is excessive in the present case, since at the time when the appellants were arrested the coup plot had not been implemented and no life or property had been lost or put in danger by the conspirators. It was further F argued that the different roles played by the appellants was not taken into account in imposing the sentence and that the appellants were sentenced not for what they had actually done, but for the probable consequences of their conspiracy. We have seriously considered these arguments and we must point out that the offence of treason, by its G nature and under the circumstances of a coup plot, is a unique offence for which an accused person, if convicted, is invariably sentenced for the probable consequences of his action. This is because, if the coup plot succeeds, the plotters are never tried, never convicted, and never sentenced. It is a reality of life that when a treasonable coup plot H succeeds, the treason ceases to exist.

There is another important point which we must mention. In the new countries of the third world, history shows that coup d'etats do have disastrous consequences on the future of countries which have experienced such events. Most of them have become I what are known jocularly as `Banana Republics' without domestic or inter-

national respect. Everyone knows that our country enjoys great international respect. A Because of this state of affairs every Tanzanian, in spite of our current national economic under-development, is able to hold his head high in the international community. Had the appellants succeeded in implementing their coup plot, Tanzania B would have inevitably become a Banana Republic, riddled with coups and counter-coups, and fit only for ridicule by the enemies of Africa for many generations to come. That appalling prospect cannot be ignored in determining an appropriate sentence.

It was also submitted that the appellants acted as they did not out of lust for power, but C in a genuine belief that they could remedy the problems facing the national economy by changing the established Government through a coup d'etat. In considering this argument, we bear in mind the fact that with the exception of the first appellant, the remaining appellants were senior officers in the army. Moreover, on the evidence, all the D appellants appear to be well educated. They must have known that coup d'etats, as opposed to progressive revolutions, have never solved problems of the national economy in the third world, and instead such coup d'etats have made economic problems worse in the countries affected. E

As to the submissions concerning failure by the Jaji Kiongozi to take into account the different roles played by the individual appellants, it is true that there was such a failure. What we have to ask ourselves is whether the learned Jaji Kiongozi would have imposed lesser sentences to all or any of the appellants if he had made a distinction F concerning the different roles played by

the appellants. We think the position here cuts both ways. It is probable that some of the appellants, particularly those who played a leading role, could have attracted a heavier sentence- that is the maximum sentence. We think that in the circumstances of this case, it would be unjust to consider a G reduction of the sentences in respect of some of the appellants without considering the possibility of the Jaji Kiongozi enhancing the sentences in respect of some of the appellants. But since we did not hear arguments on either side on the issue of enhancement, we are not in a position to do so now. H

One of the cardinal principles upon which an appellate court may interfere with a sentence imposed by a trial court on the basis of severity of sentence is to the effect that an appellate court will not interfere unless such sentence is manifestly excessive. In the present case, we do not think that the sentences imposed by the trial court are manifestly excessive under the circumstances of this case, since it is probable that the learned Jaji Kiongozi could have imposed high-

er sentences if he had considered the separate roles played by the appellants. A For this reason, the appeals against the sentences cannot succeed.

In the final analysis, therefore, we now dismiss the appeals of all the appellants in their entirety. B

C

[zRPz]RAMADHANI NYONI v M/S HAULE & COMPANY, ADVOCATES 1996 TLR 71 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Mkwawa J
D

CIVIL APPEAL NO. 29 of 1990
17 January, 1991 E
(Application for leave to appeal)

Flynote

Civil Practice and Procedure - Leave to appeal out of time - Application for - Section 14(1) of the Law of Limitation Act, 1971 (Act 10 of 1971). F

Civil Practice and Procedure - Execution - Stay of, pending appeal - Order 39 rule 5(4) of the Criminal Procedure Act.

Civil Practice and Procedure - Affidavits - Defects in - Whether curable - Section 95 of the Civil Procedure Code. G

-Headnote

The Respondent herein obtained judgment against the present Applicant in the Resident Magistrate's Court at Kisutu on 30 May 1990. The Applicant, who filed his notice of appeal outside the permissible period, now applies for leave to appeal against the Magistrates' Court's decision and a stay of execution pending the intended appeal. The H Respondent took the

point, broadly, that Applicant's affidavit in support of the application does not state under what provision of the law his application is brought.

Held:

(i) The application being one for leave to appeal out of time and for stay of execution pending the outcome of the appeal, it should reasonably be treated as an application brought in terms of Section 14(1) of the

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Law of Limitation Act, 1971, and Order 39 rule 5(4) of the Criminal Procedure Act, respectively.

(ii) In a case where a layman, unaware of the process of the machinery of justice, tries to get relief before the courts, procedural rules should not be used to defeat justice and the irregularities in an affidavit are curable in terms of Section 95 of the Civil Procedure Code.

(iii) Leave to appeal out of time is granted to the Applicant and stay of execution pending the appeal is ordered.

Case Information

Case referred to:

1. Standard Goods Corporation Ltd v Harak Chand Nathan & Co [1950] 17 EA 99

[zJDz]Judgment

Mkwawa J: This is basically an application for leave to appeal out of time to this court and stay of execution pending the appeal. The applicant was sued by the respondent before the resident magistrate's court at Kisutu whereupon judgment was entered against him. He now seeks to appeal to this court against the decision of the trial court. The applicant has, however, learnt that as he has filed his intended appeal outside the legal permissible period. He has therefore to obtain leave of this court to do so and hence this instant application. This matter proceeded ex-parte because the respondent's advocate refused service summons on the grounds that this application was set down for hearing on 11 April 1991 and not 15 January 1991. This being the state of affairs I find myself compelled to mention that this new date was set down consequent to the applicant's application for an only hearing date under certificate of urgency.

The applicant in his affidavit in support of this application has deposed that judgment against him was delivered on 30 May 1990. On 9 June 1990 he went to the Civil Registry of the Court of the Resident Magistrate at Kisutu with his relevant papers to have them filed for his intended appeal to this court. He further avers that the court official refused the said papers on the grounds that time for his appeal had already expired.

On rebuttal the respondent has through his counter-affidavit challenged this instant application inter alia on the following grounds:

(i) The affidavit does not disclose source of information.

(ii) The chamber summons is misconceived and/or founded on no law.

1996 TLR p73

MKWAWA J

(iii) The applicant has not raised sufficient cause to support this application.

I have carefully considered the arguments raised from both sides. There is no doubt or rather dispute, as it is rightly pointed by the respondent in his counter-affidavit that the B application does not state under what provision of the law this application is brought. But this state of affairs is understandable as the applicant is a layman and had no assistance from a counsel in bringing action. As this is an application for leave to appeal C out of time and stay of execution pending the determination of the intended appeal, it is reasonable and fair to treat it as an application brought under the provisions of s 14(1) of the Law of Limitation Act 10 of 1971 and Order 30 Rule 5(4) of the Criminal Procedure Act respectively. D

I have further noted other irregularities in the deponent's affidavit taking into account the most celebrated case of Standard Goods Corporation Ltd v Harak Chand Nathan & Co (1) where the defunct Court of Appeal for Eastern Africa held that when an affidavit is made in information it should not be acted upon by any court unless the sources of E information are specified. While dwelling on this matter I understand that procedural rules are intended to serve as the hand maiden of justice and not to defeat or frustrate it, and it can be denied that the strict application of the rule in question may in certain cases amount to legal formalisation. In the light of the foregoing I am of the settled view F that this Court like any other court worthy of the name has the duty to look into the matter sympathetically with a broad mind and most realistic approach. In order to do justice to the case, especially in a case where a layman, unaware of the process of the machinery of justice, tries to get remedy procedural rules should not be used to defeat G justice. In my view the irregularities in the affidavit are curable by the provisions of s 95 of the Civil Procedure Code.

The basic point for consideration and determination in the instant application is whether the applicant had reasonable or sufficient cause on which this court may exercise its H discretion and extend the time for appeal as there are no reasons why I should disbelieve the applicant's explanation. Having regard to all the facts and the circumstances of this case, I find that the applicant has shown sufficient cause for allowing his application. In the result leave to appeal of time and stay of execution I pending the determination of the appeal are accordingly granted. The applicant should

file his appeal to this court within twenty one days (21) from this date upon paying the A usual fees in time.

The matter to be mentioned before the Registrar on 2 February 1991 with a view to fixing a hearing date. The results of this ruling should be brought to the notice of the respondent. Order accordingly. B

1996 TLR p74

C

[zRPz]SAIDI RAMADWANI MNYANGA v ABDALLAH SALEHE 1996 TLR 74 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Msumi J

D

CIVIL APPEAL NO. 38 OF 1990
7 June, 1991 E
(Application for leave to appeal)
Flynote
Civil Practice and Procedure - Leave to appeal - Application for - when granted. F
-Headnote
This is an application for leave to appeal to the Court of Appeal, arising from an order of Masanche J refusing to admit the appeal to hearing and duly striking it out of the registry. The subject matter of the dispute inter partes relates to land. G
Held:

(i) Before entering default judgment, the trial magistrate ought to have invited the plaintiff to prove his case ex-parte.

(ii) The holding that the appeal to this Court is time-barred is contentious, and accordingly cannot be disposed of summarily without hearing the parties' submissions on the question. H

(iii) The matter raises contentious issues of law and is a fit case for further consideration by the Court of Appeal.

Case Information
Application granted.
[zJDz]Judgment
I Msumi J: This is an application for leave to appeal to the Court of Appeal. The matter came to this court as an appeal from the Dis-
1996 TLR p75
MSUMI J
trict Court. For reasons stipulated in the Order, this court presided by Masanche, J A refused to admit the appeal to hearing hence ordered it to be struck out of the registry. In this application the applicant is seeking leave to appeal to the Court of Appeal. In support of this application the learned counsel advanced three arguments. First he pointed out B that the land in dispute was unregistered and so the matter ought to have started in primary court. The trial District Court had no jurisdiction on the case. Secondly, he is submitting that since the subject matter in this case is land, judgment in default could only be entered after ex-parte proof by the plaintiff. There was no such proof in the C present case. And lastly the learned counsel is challenging this court's holding that the rejected appeal is time barred.
It is evident that the land in dispute is unregistered. This fact has been conceded by the learned counsel for the respondent. The second complaint is equally strong. Before D entering judgment in default, the learned trial magistrate ought to have invited the plaintiff to prove his case ex-parte. And lastly the holding that the appeal to this court is time-barred is contentious. It cannot be dismissed summarily without availing opportunity for submission of the parties. E

In conclusion, I am of the considered view that the three arguments raise contentious issues of law. Hence this is a fit case for further consideration by the Court of Appeal. The application is therefore granted as prayed. F

1996 TLR p76

A

[zRPz]K.K. KIBAYA v U.A.C. OF (T) LIMITED 1996 TLR 76 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Mkwawa J

B

CIVIL APPEAL NO. 11 OF 1990

20 February, 1992

(Appeal from the decision of the Court of the Resident Magistrate, Kisutu) C

Flynote

Contract - Contract of employment - Wrongful termination - Reinstatement of employee to previous position - Claim by employee for various allowances owing and incurred during the period of his suspension. D

-Headnote

The Appellant was employed as a `technical communicator' by the Respondent. Subsequent to the Respondent terminating the Appellant's contract of employment, the Appellant succeeded in having this termination invalidated by the Court of Appeal (Civil E Appeal No. 36 of 1987). The present appeal is lodged against the finding of the Resident Magistrate, Dar es Salaam, at Kisutu, allowing the Appellant only 15,000/= for medical expenses, and dismissing his claims for `depreciation allowance' and `tools box allowance' incurred during the period of his suspension from the Respondent. F

It was not in dispute that his position at the Respondent entitled the Appellant to these allowances. The trial court dismissed the claims on the basis that the Appellant was not employed by the Respondent during the period of his suspension and accordingly did not render any services to the Respondent warranting the claims. G

Held:

(i) The Appellant failed to comply with the Respondent's circular governing medical claims in that he did not consult any of the approved medical organisations and institutions.

(ii) Once there is an order for an employee's reinstatement, he is entitled to all his H rights as the contract of employment has revived with all its incidents.

(iii) The Appellant's claims for the two allowances are upheld, and the appeal succeeds in respects of those two claims.

(iv) The Appellant is allowed his costs in this Court and in the court below. I

Case Information

Order accordingly.

1996 TLR p77

Cases referred to: A

1. Measure Brothers Ltd v Measures [1910] 2 Ch 248

2. Tanzania Harbours Authority v Wendelin Ludger Civil Appeal No 8 of Dar es Salaam Registry (unreported)

Adamjee, for the Respondent. B

[zJDz]Judgment

Mkwawa J: This appeal arises out of the judgment and decree of the learned senior resident magistrate of the Court of the Resident Magistrate, Dar es Salaam at Kisutu. Before the lower court the appellant had inter alia filed claim for medical expenses, C depreciation allowance and tools box allowances. Those claims were dismissed by the lower court and being aggrieved with the said decision the appellant now appeals to this court.

It is common ground that the suit which gave rise to the instant appeal springs from the D decision of the Court of Appeal (Civ App No 36 of 1987) which invalidated the appellant's termination of employment. It is further common ground that consequent to the decision of the Court of Appeal the appellant was reinstated to his previous employment namely in the respondent's/defendant's company where he worked as a technical communicator. It is further not in dispute that the appellant by the virtue of his E position in office he was entitled to various allowances. He was thus entitled inter alia to allowances like `depreciation allowance, tools allowances and medical allowances.'

The trial court disallowed the depreciation and tools allowances solely on the ground that F during the period of his termination he was not in the employment of the respondent and he thus did not render any services to the respondent to warrant him to base the claims now before me. The appellant had put up a claim of Shs 49,130/= as his medical entitlement. The trial resident magistrate allowed Shs 15,000/= only and disallowed the G rest of the claim.

I feel constrained to mention right from the outset that there has been no cross-appeal from the respondent company. This being the state of affairs this court is only called upon to determine the appeal of the appellant/plaintiff and this is precisely what I will do H though I have my reservations and misgivings in that some of the claims that have been allowed by the trial court. But for the forementioned reasons I will refrain from making any further opinion on them as I have not been called upon to do so.

I The appellant in his memorandum of appeal takes the following grounds:

1996 TLR p78

MKWAWA J

A `1. That the learned trial Senior Resident Magistrate erred in law in holding that I be paid Shs 15,000/= for medical expenses, and not the full amount as per the produced receipts.

2. That the learned trial Senior Resident Magistrate misdirected himself in not awarding me the depreciation allowance which was payable during leave period too. B

3. That the learned trial Senior Resident Magistrate misdirected himself in not awarding me the tools box allowance which was also payable during leave period.'

Before the lower court and in this court the appellant who appeared in person urged the C court to allow his claims on the following grounds:

As regards the medical claims the appellant has maintained in both courts that he was entitled to a refund of the expenses he had undergone principally on the basis that the medicines/drugs that he had purchased were not available in the clinics D authorised/approved by the respondent company.

I now turn to the other claims, namely the depreciation and tools allowances. Here the appellant contends that as the termination was unlawful and that he did not contribute to E the anomalous situation the employer is under obligation to pay him his allowances.

In rebuttal Mr Adamjee for the respondent company argued that generally the appellant can not be paid the allowances in question as at the relevant period he was not physically engaged in any official duties on behalf of the respondent/defendant. Coming to specifics, Mr Adamjee submitted as follows: F

The appellant could not demand to be refunded the expenses he incurred in meeting the medical bills because he did not follow the rules and procedures laid down by the G respondent company. Mr Adamjee submitted that a circular was issued by the respondent company to its management staff, giving names of approved medical organisations and institutions. The available evidence has amply shown that the appellant did not consult any of the approved organisations.

As regards the appellant's claim for depreciation allowance, Mr Adamjee submitted on H behalf of the respondent company that the claim was baseless because the use for the vehicle should be for `official company business'. It could not be argued that at the relevant period the appellant was using his vehicle for official company business as his services, during the relevant period, had been terminated. I

Last but not least Mr Adamjee addressed the court in respect of

the tools allowance. Here again, he submitted that the appellant was not there to use his A tools. He could not therefore lay any claim on the use of tools as he did not at all use them for the company's business. The crux of the matter is whether the appellant is entitled, in law, to be paid the allowances in question under the forementioned circumstances. B

I will begin with the medical claims. It is beyond dispute that the appellant failed to comply with the circular governing medical claims. I respectfully accept Mr Adamjee's submission that the appellant's claim cannot succeed. The appellant had shown total C disregard for the respondent company's instructions in respect of such claims. I have considerable difficulty in seeing how he should succeed on this ground. For the foregoing reasons this ground fails and it is accordingly so ordered.

I now turn to the depreciation allowance and the tools allowance which I shall deal with D collectively. It is not in dispute that the appellant did not work for the respondent at the time, he was terminated. Bearing this in mind it would be wrong to ask the respondent to pay the appellant the allowances he is now claiming. All things being equal this would amount to unjust enrichment by the appellant. E

On the other hand it has been argued by the appellant that he did not contribute to this anomalous situation. He was in this case ready and willing to work for the respondent but, as the evidence amply demonstrated, the respondent would not let him work. Admittedly an allowance is not a salary. But, it is common knowledge that allowances F are paid out to employees to augument the otherwise low statutory salaries. In the instant matter the lower court has allowed the appellant's claim for the unpaid salaries during the material period and as I had indicated much earlier on the respondent has not cross-appealed to challenge the said decision which I must say is sound in law. G

As it was held in the case of Measure Brothers v Measures (1), which was quoted with approval by this court by Mnzavas JK (as he then was) in the case of Tanzania Harbours Authority v Wendelin Ludger (2), that: H

> `it is elementary justice that one of the parties to a contract shall not get rid of his responsibilities there under by disabling the other contractor from fulfilling his part of the bargain'.

In the instant matter the respondent company wrongly terminated the appellant from I work. Can he now turn round and say

1996 TLR p80

that the appellant is not entitled to what he would have received had he been in A employment. I do not hesitate to answer in the negative. Once there is an order for reinstatement the employee is entitled to all his rights as the contract of employment has revived with all its incidents. This appears to be the principle enunciated in Wendelin's case (supra). In my view to hold otherwise would make neither equity, justice or even B sense.

For the foregoing reasons these two grounds of appeal succeed and it is accordingly ordered so. The appellant is to have his costs of this court and that below. C

1996 TLR p80

D

[zRPz]TANZANIA DEVELOPMENT FINANCE CO. LTD v CALICO TEXTILE INDUSTRIES LTD AND ANOTHER 1996 TLR 80 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Kyando J

E

MISC. CIVIL CAUSE NO. 51 OF 1992

3 September, 1992 F

Flynote

Company Law - Charge to secure a loan - Misstatement on charge document of amount secured - Rectification of.

-Headnote

The Applicant in the present case applied for the rectification of two documents to record G properly a secured amount of US$ 904,000, loaned by the Applicant to the First Respondent. The

two documents in question were `Form No.9', being the particulars of a charge to secure a loan from the Applicant, and a Certificate of Registration of Charge (`Form C.2'), held by the Registrar of Companies (Second Respondent). H

Form No.9 repeated the terms of the debenture, issued by the First Respondent as security for the loan from the Applicant, as follows: `Single debenture for US$ 904,000 (or the equivalent thereto (sic) in other convertible currencies) being approximately Shs.16,626,500/=.'

In Form C.2, however, the Second Respondent entered that the debenture was `to I secure the sum of shillings sixteen million six twenty six thousand five hundred (Shs 16,626,500/=) only'.

1996 TLR p81

The Applicant contended that the amount in both documents expressed in shillings was A a misstatement and that both documents should be rectified to state the amount expressed in United States dollars only.

Held:

(i) The loan agreement, which gave rise to the two documents under consideration, indicates clearly that the loan advanced by the Applicant to the B First Respondent was US$ 904,000 by way of a foreign currency loan.

(ii) The amount secured by the debenture throughout it was stated to be US$ 904 000.

(iii) The amount of Shs 16,626,500/= expressed in both documents was clearly a misstatement. C

(iv) The preliminary objections raised by the Respondents, against the bringing of the application itself, the validity of the affidavit used by the Applicant and time-barring of the application, such preliminary objections are overruled.

(v) The application succeeds with costs. D

(vi) The Second Respondent is ordered, within 14 days from the date of delivery of ruling, to rectify forms No.9 and C.2, as well as his register of charges, to show that the amount secured is US$ 904,000.

(vii) The First Respondent is similarly ordered to rectify his register of charges to reflect that the debenture is security for US$ 904,000 only. E

Case Information

Ordered accordingly.

Cases referred to:

1. In re Mechanisations (Eaglescliffe) Ltd [1964] 3 All ER 840
2. National Bank of Commerce v Mannbha Shankarbhai Desai [1969] HCD 206 F

Kameja, for the applicant.

Ismail, for the first respondent.

[zJDz]Judgment

Kyando J: In this application Tanzania Development Finance Co Ltd, the applicant, G applies for the following reliefs against the respondents:

`(a) An order that in both companies Form No 9, being particulars of a charge created by the first respondent to secure a loan from TDFL misstated the amount to Shs 16 626 500/= and a Certificate of Registration of Charge issued by the second respondent in respect thereof be

H rectified so as to properly record the amount secured as being US$904 000 on grounds that the misstatement of the sum secured was due to inadvertence or alternatively, that on grounds stated in the supporting affidavit it is just and equitable to grant the relief. I

(b) Costs of this application.'

1996 TLR p82

KYANDO J

The deponent of the affidavit in support of the application is Rugambwa Cyril John A Pesha, the Company Secretary of the applicant, and in his affidavit it is shown, inter alia, that the objects for which the applicant was established are, amongst others, to lend money with or without security. `As such lender,' he states in para 3 of his affidavit, `the B applicant was to serve as a conduct for channeling external assistance to economically feasible and financially attractive projects in the country so as to effectively utilise the country's development potential. Shortly after its incorporation it commenced to carry on and has since carried on the business in pursuance of the said objects.' C

The above therefore are the functions of the applicant. Needless to say, both the applicant and the first respondent, Calico Textile Industries Ltd, are companies registered under the Companies Ordinance, Cap 212. The second respondent is the registrar of companies in terms of the provisions of the Companies Ordinance. D

In para 4 of the affidavit in support of the application it is stated that pursuant to the objective for the applicant's establishment the Government of the United Republic of Tanzania in 1978 permitted the applicant to borrow funds from the International Bank for E Reconstruction and Development (`The World Bank') for lending to projects in Tanzania. In para 5, it is stated,

`5. That on 27 April 1979; the applicant agreed to provide Calico Textile Industries Limited, the first Respondent herein, with Shs2,500,00/= by way of Income Notes and US $904,000 (or the equivalent F in other convertible currencies) by way of a foreign currency loan.'

The respondents do not dispute that this loan was advanced-as stated by the applicant. It (the loan) was provided under a Loan Agreement entered into between the applicant G and the first respondent dated 8 December 1985 (exh `C' annexed to the affidavit of Mr Pesha). It was then secured by a debenture created and issued by the first respondent. The debenture, in terms of s 79 of the Companies Ordinance, was then registered by the second respondent.

On the top cover of the debenture it is stated in the form of a title or subject as follows: H

`Single Debenture for US $904,000 (or the equivalent thereto in other convertible currencies) being approximately Shs16,626,500/=.' I

In registering the debenture the second respondent entered in the

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KYANDO J

Certificate of Registration of a charge (form C2) (exh `F' to Mr Pesha's affidavit) that the A debenture was to secure the sum of shillings sixteen million six twenty six thousand five hundred (T Shs 16 626 500/=) only. The form for the particulars of a mortgage or charge created by a company registered in Tanzania, pursuant to s 79 (supra) (form No 9) (exh `E' to Mr Pesha's

affidavit (the second respondent says the correct form No 9 is B annex (i) to his counter affidavit, and I think this is so) had been presented to the second respondent and it was on the basis of it that he issued form C2.

This year the first respondent sent to the second respondent a `Memorandum of C Satisfaction of Mortgage or Charge', dated 6 May 1992. The memorandum is as follows:

`CAP 212

MEMORANDUM OF SATISFACTION D

OF MORTGAGE OR CHARGE

CALICO TEXTILE INDUSTRIES LIMITED P.O. BOX 9021, DAR ES SALAAM,

HEREBY gives notice that the registered Charge being DEBENTURE DATED DECEMBER, 1985, TO SECURE THE SUM OF SHILLINGS SIXTEEN MILLION SIX HUNDRED TWENTY SIX THOUSAND FIVE E HUNDRED (T.SHS.16,626,500/= ONLY IN FAVOUR OF TANGANYIKA/TANZANIA DEVELOPMENT FINANCE COMPANY LIMITED of which particulars were registered with the Registrar of Companies on the TWENTIETH day of DECEMBER 1985, was satisfied on the TWENTY THIRD day of F DECEMBER 1988 to the extent of T.SHS. SEVENTEEN MILLION FOUR HUNDRED THIRTY EIGHT AND CENTS THIRTY FIVE (T.SHS.17,418,438/35) ONLY.

In witness whereof the common seal of the company was hereunder affixed the SIXTH day of MAY 1992.' G

A `Declaration Verifying Memorandum of Satisfaction of Mortgage or Charge' in terms s 84 (exh G) was duly issued and the memorandum was annexed to it. On the basis of the memorandum and exh `G' to Mr Pesha's affidavit, the second respondent issued a H certificate (exh `H'). Certifying that the charge created on 18 December 1985 by the first respondent in favour of the applicant `to secure the sum of Shs sixteen million six twenty six thousand five hundred (Shs 16,625,500/=) only has been discharged'. I

The certificate is dated 7 May 1992 and is signed by the second respondent.

1996 TLR p84

KYANDO J

It is now the case for the applicant in this application that the sum of Shs 16 625 500/= A which is indicated in form No 9 and the Certificate of Registration of Charge (form C2) (exhs `E' and `F' respectively) was a misstatement and that it ought to have been mentioned in them that the sum which was secured by the debenture was US $904,00 B only ie without stating the Shs 16 626 500/= as now stated therein. Hence the request that:

`The register of charges be rectified by deleting therefrom reference to T.Shs.16,626,500/= (both in words and figures) so as to reflect the amount secured by the debenture as being US $904,000 only.' C

It is contended by the applicant that by the terms of the loan agreement and the debenture, the money loaned, and secured, was US $904 000 (or the equivalent in other convertible currencies) by way of a foreign currency loan. In para 6 of his affidavit, Mr D Pesha states that the repayment of the loan was to be made in shillings at the National Bank of Commerce selling rate on the date of payment for the foreign currency. Finally, in para 15, he states that the only

reference to Shs 16 625 500/= in the loan documents was, as shown already, on the cover of the debenture, and that the reference thereon, E

`was solely meant to state the Tanzania shilling equivalent of the foreign currency loan at the date thereof for the purposes of calculation of stamp duty which was payable in Tanzania shillings. To the extent that T.Shs were referred to in the loan agreement and the debenture it was solely for the F purposes of providing for the manner of payment of the foreign currency loan and not for defining the currency in which the loan was to be secured.'

It is finally the applicant's case that the declaration of satisfaction and the memorandum G of satisfaction of a charge or mortgage (supra) are false and the certificate issued by the second respondent certifying the discharge of the charge is void ab initio.

I have already stated that the respondents do not dispute that the loan was advanced as H asserted by the applicant. Looking through their counter affidavits and written submissions (I required counsel for both sides to file written submission), they do not, too, seem to dispute that the loan advanced was US $904 000 (or the equivalent in other convertible currencies) by way of a foreign currency loan. They did not, in other words, I contend that what was agreed between the parties to be loaned, and what was actually loaned, was

Shs 16 626 500/=. Their contention appears to me to be that even if the agreed loan was A US $904 000 (or the equivalent in other convertible currencies) by way of a foreign currency loan, such amount in the documents of registration of charges Form 9 and C2 (supra) could only have been expressed in Tanzania currency and that amount at the relevant time was equivalent to Shs 16 626 500/=. They make this point in passionate B terms, the first respondent's counsel Mr Ismail submitting, for instance as follows:

`My learned friend has dealt at great length on the loan agreement and the admissions, but suffice it C so may it is the debenture that is important in the application at hand.

The amount secured by the debenture in equivalent to the foreign currency loan ie as at 1985 $904,000 was equivalent to Shillings 16,626,500/=. Indeed it would have been impossible to inset a figure other than Shs.16,626,500/= as at that time that was the value of $904,000. My learned friend is D seeking to insert a foreign currency in the charge! It is my respectful submission that the suggestion is preposterous. The Companies Ordinance like all other legislation in this country is meant to provide for situations in this country. The Bank of Tanzania Act 1966 specifically states in Section 1, of Part III-that "the unit of currency in Tanzania shall be the shilling, each shilling shall be E divided into one hundred cents".

Section 26 of the same Act states--"the bank shall have the sole right to issue bank notes and coins for Tanzania and subject to Section 33, only bank notes and coins issued by the Bank shall be legal tender in Tanzania" (Section 33 is only a transitory section). F

Indeed it would be unlawful for any government department to accept or quantify any documents in a currency other than the Tanzanian shilling. It should always be remembered that currency, like a flag, national anthem etc, are the ingredients of sovereignty and one should not treat such issues lightly. It G would amount to Tanzania subjecting her sovereignty to that

of the United States if my learned friends' submissions were accepted. And one can imagine the chaos and mess it would bring. What would be the position if a loan were pegged to the Japanese Yen, Australian dollar, Saudi Arabia's rial, Oman's rial, Dubai's dirham etc etc? Indeed it is a well known fact that institutions and our own H government received aid/loans/grants from various foreign donors-but that it is a matter of international trade and not within the precincts of our courts.

The evidence on record, and even my learned friend admits that the figure of Shs.16 626,500/= was recorded in form 9 as against that of sus. $904,000 without malice. He however submits that it was I done inadvertently. In my respectful submission that that is the understatement of the year. All parties were aware that the debenture was

for security of Shs.16,626,500-but the instalments were to be paid at the rate of the dollar to the A shilling at the material time. Indeed the loan agreement was a mere formality, as the money was disbursed to the First Respondent between 1980 to January 1985 (Paragraph 8 of the First Respondent's affidavit)--whereas the debenture and the loan agreement were registered and signed in December 1985.' B

And the second respondent submits:

`It is not my intention to reply to every submission by the Applicant because most of them involve the C Loan Agreement which is a Contract between the Applicant and the First Respondent and the Second respondent is a stranger to the said contract, thus I will only devote to these submissions that concerns me and I submit as follows:

(i) The relief sought by this Application is only one and is clearly stated in paragraph 20 of Mr. D Pesha's Affidavit and with my foremost humble apologies to your Lordship I beg to quote the same as I do hereby quote:

" That in the premises it is just and equitable for an order to be made by this Honourable Court that the register of charges be rectified by deleting therefrom reference to Tshs.16,626,500/= E (both in words and figures) so as to reflect the amount received by the debenture as being US dollars 904,000 only" I quote. (The emphasis is mine.)

(a) In this prayer the Deponent on behalf of the Applicant states that the amount was received by the debenture.

F And this is the Content of his prayer of relief. What his statement means is that the amount was received by somebody else or another entity and not by the first respondent. One wonders as to why there should be an application against the first respondent if the Applicant states that the Applicant was not the recipient of the amount. G

(b) The Applicant is apparently praying for equity. It is my humble submission that it is a principle of law that equity should follow the law and not vise versa.

(c) It is apparent that the Applicant is not applying for an increase or decrease of the amount H but is praying for the substitution, declaration and erasing of the currency Tanzania Shillings and replacement with a foreign currency called US dollars. This prayer is objected to in the strongest terms and intention due to the fact that it is a prayer/application

which is totally against the laws of the Sovereign State of United I Republic of Tanzania and the said laws are.

1996 TLR p87

KYANDO J

(i) The Companies Ordinance A

Section 2(1) of the Companies Ordinance Cap 212 provides among other things the definition of rules to the Companies Ordinance as follows and I quote:

"Rules" means rules made under section 285 of this Ordinance and includes forms; B

I humbly submit that the Certificate of Registration of a charge is a form and is commonly known as form C2 and therefore is part of the rules to the Companies Ordinance and it was so made under the provisions of Section 285 of the said Cap. 212. Annexure marked (ii) to my Affidavit is a photocopy of the said form C2 otherwise known as certificate of registration of a C charge. The greater part of the said form is prepared and only provides some dotted gaps where the Registrar enters the necessary entries eg. dates, name of the creator of the charge, name of the entity for which the charge is created in favour of, the amount secured-etc.

The said form clearly mentions the currency shillings and leaves no doubt that the currency to D be stated in shillings and no other currency. In Annexure II to my Affidavit I have marked the place where the currency shillings is stated in the form and the marking is in light red colour.

I humbly request your Lordship to see the said mark and note the stated currency. E

The Applicant's prayer is that this Honourable Court should order the deletion or erasing of the term (currency) shilling.

It is my humble submission that if such order was to be issued same would amount to amending form C2 (Certificate of Registration of a Charge) and therefore amending the F rules-which are made under Section 285 of the Companies Ordinance Cap. 212. Section 285 gives the power to make rules to the Minister responsible for Companies Incorporation and with due respect not to the Court.

I further submit that rules to any state are part and parcel of that statute. An Application to the G Court for an order amounting to an amendment of any rules is an application to the Court to amend the statute in question.

With all humbleness and due respect I have to inform the Applicant and remind the Applicant's Advocate that courts of law have powers to interpret laws but not to enact nor amend laws. H

(ii) The Bank of Tanzania Act No. 12 of 1966

(a) Section 24 of Act No. 12 of 1966 provides as follows and I quote "The Unit of currency in I Tanzania shall be the Shilling, each shilling being divided into one hundred cents."

1996 TLR p88

KYANDO J

(b) Section 26 of Act No. 12 of 1966 provides as follows and I quote: A

"The Bank shall have the sole right to issue bank notes and coins in and for Tanzania and, subject to Section 33, only bank notes and coins issued by the bank shall be legal tender in Tanzania.

I submit that from the provisions of the above quoted Sections of the bank of Tanzania Act, Act B No. 12 of 1966 it is too obvious that the currency and legal tender of Tanzania is the shilling or to be more specific Tanzania Shilling and no other currency.

The charge in question is a charge created by a Tanzanian Company in favour of another C Tanzanian Company. It is a charge between two artificial Tanzanians and it is absurd for them to be governed while within Tanzania by a currency and legal tender other than their national currency.

National currency, are like national flags, anthems and borders, they are the landmarks of D sovereignty and they cannot and should not be taken lightly. We know from our recent history that when Idi Amin took our national borders lightly we went to war against him to defend our sovereignty. National currency shares the same status like the borders and the National anthem and an application that the National currency should be deleted from a government E official document is nothing less than an insult to Tanzania and its sovereignty.

It is my submission that this prayer should fail because it contravenes an existing statute enacted by the Parliament of Tanzania. Further that if it is allowed it will set a bad precedent F which will cause untold chaos, mess and confusion in the carrying out of the duties of the Registrar of Companies and the registrar of Charges under the custody of the Registrar will end up being a completely un-systematic registrar containing every conceivable currency on G earth depending on what every applicant prefers. Same would include Dutchemarks, Kroners, Rubles, Rials, Rand, Kwachas, Naira etc.

While I concede that some of the foreign loans are given in foreign currencies, that is a matter of international trade but not within the practice of our Court. Indeed even the national budget H is composed of local resources and foreign resources but the framing of the budget is strictly on the national currency and not any other currency. To allow this prayer to succeed will, to quote the distinguished words of the Honourable Judge Kyanod in the case of Seiff Hamad Shariff v R "will create a bad policy and a wrong policy." I therefore repeat that this prayer and I the whole Application should be dismissed.

1996 TLR p89

KYANDO J

He also disputes that there was a misstatement in the forms registering the charge and A on this he submits as follows:

`To do some justice to the submissions of the applicant I will make the following few submissions/replies.

(i) On page two (2) of the submissions of the Learned Advocate of the applicant, the Learned B Advocate states that the first respondent misstated the amount (of money) secured by stating in Form No 9 which is the Applicant's exhibit `E'. This allegation is strongly denied and the true fact is as follows: C

Form No. 9 is divided into five (5) columns two (2) of the columns in which the amount secured by the Mortgage or charge is stated. I humbly crave to draw your Lordship's attention to my Annexure (i). In the said column two the first respondent or his Advocate stated as follows and I quote "Amount Secured by the Mortgage or Charge as US Dollars 904,500 D being approximately Shs.16,626,600/=. The first respondent did not state that the amount secured is Shs.16,626,500/= being approximately US Dollars 904,000." The statement is exactly in the same manner that the Applicant is submitting to the Court and it is surprising E that the Applicant is disputing it, a situation which amounts to disputing his own submission. I humbly submit that there was no misstatement on the part of the first respondent and this submission by the applicant should not be entertained.

There having been no misstatement on the part of the first respondent, it is my submission F that the issuance of the Certificate of Registration of the Charge by the second respondent in the manner it was issued was not occasioned nor influenced by any misstatement by the first respondent. G

The registration and issuance of the certificate was done in accordance with the provisions of the law.

I further submit that if the Second respondent had registered and issued the certificate in any H other manner e.g. entering the amount secured in US Dollars same would have been illegal because it would have contravened the provisions of the governing law.'

The other important arguments made by the respondents are that there is no longer any charge created by the first respondent in favour of the applicant `due to the fact that the I then existing charge was discharged on 6 May, 1992', and that as no application has

been made for a declaration that the discharge is null and void the application is A incompetent as there is nothing presently to rectify.

The other argument relates to the legality of the loan agreement of the debenture. It is contended that as execution of the agreement and debenture was made after the B disbursement of the amount of the loan had been made, the loan agreement and the debenture are tainted with illegality.

I propose to consider and deal with all these points seriatim.

The application is made under s 85 of the Companies Ordinance. The section provides: C

`85. The Court, on being satisfied that the omission to register a charge within the time required by this Ordinance, or that the omission or misstatement of any particular with respect to any such charge or in a memorandum of satisfaction, was altered or due to inadvertence or to some other sufficient D cause or is not of a nature to prejudice the position of creditors or shareholders of the company, or that on other grounds it is just and equitable to grant a relief, may on the application of the company or any person interested, and on such terms and conditions as seem to the court just and expedient, order that the time for registration shall be extended or, as the case may be, that the omission or E misstatement shall be rectified and may make such order as to costs of the alterations it thinks fit.'

Section 82 of the Ordinance provides for the Registrar of Charges to be kept by the Registrar of Companies, the second respondent herein. F

There are three important documents to consider in this application: (1) the loan agreement; (ii) the debenture and (iii) forms 9 and C2. In relation to this, especially to the debenture, in the case of In re Mechanisations (Eaglescliffe) Ltd (1), a case cited by G Capt. Kameja, learned counsel for the applicant, the mortgagee presented to the companies registration form CF (corresponding to form No 9 supra) which had been completed by the solicitors of the company in respect of a charge securing certain sums. The particulars therein were misstated as to the amount secured in that no H reference was made therein to interest and additional money secured by the charge. The companies registrar registered the charge as per submitted particulars and issued a certificate under s 98(2) of the Companies Act 1948 (corresponding to s 82 of the Ordinance).

In a subsequent creditor's voluntary winding up, for the total sum advanced by them I including the excess interest and the additional money not mentioned in the particulars of the charge and the regis-

trar's certificate. The Liquidator sought a declaration that in respect of the excess the A charges were void as against him or any creditor for want of registration, arguing that the effect of s 98(2) aforesaid is to make the registrar's certificate conclusive evidence of due registration of a charge securing such amount as is stated on the face of the certificate. Rejecting the argument, Buckley J stated, at 35: B

> `In order to discover the terms and effect of the charge ... one must look at the document creating the charge and not at the register. It is from that document that one will discover what moneys are secured and what is the total amount secured by the charge.' C

Capt Kameja submits that the instrument creating a charge, `in this case debenture, constitutes primary evidence of the extent of the charge and the amount thereunder'. With respect, I agree. In addition I would add that though the amount stated in a loan D agreement may not necessarily all have to be secured, where, as in this case, it is contended the amount stated in the loan agreement was secured by a charge, the agreement becomes, as I have stated already, an important document too, to look at in order to discover what amount was loaned and then secured. E

Now, according to the loan agreement in this case, the loan advanced by the applicant to the first respondent was US $904 000 (or the equivalent in other convertible currencies by way of a foreign currency loan . Looking at the debenture, apart from the cover as F shown, the amount indicated to be secured by it throughout its (the Debenture's) body is stated to be US $904 000. This is the flow of the statement of amounts in the two documents. According to these two documents, what was the amount which was loaned and secured? Obviously US $904 000. There is no mention of T Shs 16 626 500/= in the loan agreement or the body of the debenture. I agree therefore that the G amount which was advanced by the applicant to the first respondent which was then secured by the debenture created and issued by the first respondent in this

application is US $904 000. I have already said that even the respondents in their counter-affidavits and submissions do not appear to dispute this. H
Was it necessary to state the US $904 000 only in form No 9 and C2? (In the column `Amount secured by the Mortgage or Charge (In form No 9 Annex (i) to the second respondent's counter affidavit) it is stated that the amount secured is US $904 000 being approximately Shs 16 626 500/=). This is, as stated already, the crucial point in this I matter. The responding arguments on it have been reproduced above. To them Capt Kameja replies as follows:
1996 TLR p92
KYANDO J

`My Lord, the respondents' submission that the amount secured by the debenture was T Shs A 16,626,500/= because under the laws of Tanzania no charge could be registered in foreign currency is as far fetched as it is fanciful. The respondents' arguments in support of national sovereignty, the national flag, national anthem etc. may be patriotic and, perhaps, good material for a political dissertion but, in my view, certainly not practical. Respondents' have not cited any authority, and I am B not aware of one, to support the proposition that a Tanzania person, individual or corporate, cannot borrow money in foreign currency, secure it as a foreign currency debt and repay it in foreign currency.

Equally fanciful in the respondents' submission that the applicant, in the words of counsel for the first C respondent, is "seeking to insert a foreign currency in the charge". My Lord, the charge, being the debenture dated 18 December, 1985, speaks for itself and, at the risk of repeating what I stated in the main submission, I refer to condition 1 of the said debenture which clearly provides that "This Debenture is security for principal moneys not exceeding US $904,000 (or the equivalent thereof in D other convertible currencies) in aggregate together with interest thereon." In this regard, I reiterate my arguments at pages 9 and 10 of the main submission and in particular the fact, which the respondents have not disputed, that "the Tanzania Shilling is not and has never at any material time E been a convertible currency". It is too obvious to be seriously disputed that the Tanzania shilling, being a non-convertible currency, was not contemplated by the parties as being the currency of the charge.

The second respondent also argues that the currency stated in Companies Form C2, i.e. the certificate of registration, is Shillings and that recording the amount secured in any other currency F would amount to amendment of the said form and "therefore amending the rules which are made under section 285 of the Companies Ordinance". My Lord, section 285 of the Companies Ordinance only provides for "General rules and fees for Winding up" and, for sure, registers of such charges G have nothing to do with section 285 aforesaid.

At any rate forms are applied as far as is practicable. Substitution of the word "Shillings" by the words "United States Dollars" in the said form would not have offended any law. In the said Form C.2 issued by the second respondent, and which he apparently holds to be sacrosanct, the second H respondent crossed out the word "charge" and substituted therefore the word "Debentures" so as, in our view, to clearly identify the type of charge created. If the second respondent's argument is pursued to its logical conclusion his own act, above, amounted to an

amendment of the form and the rules and the second respondent doesn't even suggest he has powers to make such amendments. I How come then that substituting "United States
1996 TLR p93
KYANDO J
Dollars" for "Shillings" on the said form so as to specify the currency of the charge suddenly A becomes an amendment of the rules! That would, in our humble submission, be a classic case of hypocritical double standards.'
With extreme respect, I could not agree more with Capt Kameja in his above B submissions. The immutability except by the Minister's hand, of form C2 has been, as Capt Kameja rightly contends, violated by the second respondent himself. In that form the word `Charge' has been cancelled out by the second respondent and above it the word `Debenture' to accommodate the debenture in this case has been written. If that C form can so easily be changed by the second respondent, why should cancelling the word `Shillings' and writing the words `US Dollars' instead amount to amending the rules, I simply do not comprehend this. As for the other arguments on the point stated earlier on above, Capt Kameja has tackled them all in his reply and all that I can say is D that these arguments of the respondents are to me nothing more than sheer sophistry. I reject them here and hold that the US $904 000 should have been expressed in forms No 9 and C2, including the register of charges, as the amount secured by the debenture created and issued by the first respondent in this case. The loan was a foreign currency E loan, and there was nothing wrong or improper to express it in foreign currencies in form No 9 and C2.
The statement of T Shs 16 626 500/= in relation to US $904 000 in form No 9 and C2 does, in view of the fast falling value of the Tanzania Shilling, to any mind now look F ludicrous. I accept as true the explanation given by the applicant for stating the equivalent of T Shs 16 626 500/= and I think it was because of the purposes stated in that explanation that the amount was stated as a mere approximation of US $904 000. If indeed the amount was intended to be the amount to be secured by the debenture, an G actual amount would have been stated and not a mere approximation.
Concerning the arguments or point that the charge has been discharged, I am of the view that such arguments or points can be valid only if the loan of US $904 000 has been paid or notified. The applicant says it has not and if that is so, the so-called H discharge is no discharge at all. This is because it is based on the erroneous assumption that the loan was for Shs 16 626 500/= whereas it was not, it was for US $904 000. No valid discharge has ever taken place therefore. The one effected by the second respondent on the basis of the first respondent's memorandum and declaration I of correctness of the memorandum is hereby quashed and set aside.
1996 TLR p94
KYANDO J
As regards the legality or otherwise of the loan agreement and the debenture, I detect no A illegality in these and I reject the respondents' arguments in relation to this.

The other arguments made by the respondents on the merits of the application do not seem to be worth any consideration here. I find them all without any substance and I reject all of them here. B

They (the respondents) have also raised several preliminary points of objection to the application. One of them is that the application is wrongly made under s 95 of the Civil Procedure Code 1966. I am of the view that this point would have been valid if the C application did not cite s 85 of the Companies Ordinance as well. As it, however, cites this latter section, s 95 Civil Procedure Code can be ignored without the application being affected in any way.

Another point is that the affidavit of Mr Pesha is defective in that the sources of some of D the information are not disclosed. Capt Kameja has replied to this by referring the court to the decision of Georges CJ as he then was in The National Bank of Commerce v Mannbha Shankarbhai Desai (2) wherein the learned Chief Justice stated: E

`Similarly, paragraphs 9-1 are clearly sworn to on information and belief, and since the source has not been set out, the paragraphs are clearly bad and should be struck out. There remains a body of evidence sufficiently vouched in the affidavits from personal knowledge or from information and belief F with sources specified to enable the matter to be disposed of.'

In the present case, the information necessary for the full and final determination of the application has been properly sworn to and the important documents exhibited. These are the loan agreement, the debenture, forms No 9 and C2 and those relating to the G `satisfaction' of the charge. The point raised therefore is of little, if any, weight.

Finally, there is the point on limitation. It is contended by the respondents that the application is time-barred. However, the following answer, with which I agree, by Capt H Kameja in his reply to the contentions of the respondents suffices to dispose of the contentions in favour of the applicant:

`My Lord, the first respondent has also raised an objection based on the law of limitation. This objection holds no water. The application herein was based on the ground that the misstatement of I the particulars was inadvertent or, alternatively, that it is just and equitable to

grant relief. In Black's Law Dictionary, already cited, the word "inadvertence" is said at page 759 A thereof to be used chiefly in statutory and rule enumerations of the grounds on which a judgment or decree may be vacated or set aside; as "mistake,...". It connotes a mistake occasioned by intention or excusable neglect. Thus in this case the application is for relief from the consequences of the respondents' mistakes. B

Section 26(c) of the law of Limitation Act, No. 10 of 1971 provides that where the proceeding is for relief from the consequences of a mistake the period of limitation shall not begin to run until the Plaintiff has discovered the mistake, or could, which reasonable diligence, have discovered it. C

In this case, Mr. Pesha, the applicant's Company Secretary, has responded, in paragraph 4 of the reply to the second respondent's counter affidavit, that he inadvertently overlooked the misstatement of the amount secured at the time the certificate of registration was issued and that he first discovered the misstatement after receiving the second respondent's letter dated 16 April, 1992. The D respondents have not tendered any evidence to show that the applicant was in fact aware of the mistake, that is to say the misstatement of the amount secured, on a date earlier than 16 April, 1992 or that he did not discover it earlier for lack of reasonable diligence.

It is submitted that in this case the period of limitation did not start to run until April, 1992 and since E the application was filed on 29 May, 1992 well within the period of limitation of sixty days provided for under item 21 of Part III of the First Schedule to the law of Limitation Act the objection cannot succeed.' F

On the whole, the preliminary objections raised by the respondents are really of faint, if any, valued and that is why I did not consider them worthy to be dealt with before dealing with the application on its merits. I overrule all of them.

Should the application be granted? The statement in forms No 9 and C2 that the loan G secured by the first respondent's debenture was US $904 000 being equivalent to T Shs 16 626 500/= or Shs 16 626 500/= respectively is clearly a misstatement. The correct amount secured by the debenture is US $904 000 (or the equivalent in other convertible currencies) by way of a foreign currency loan as per the debenture itself. It was a H misstatement therefore to state in these forms that the amount of the loan secured was US $904 000 being equivalent T Shs 16 626 500/= (form No 9) or Shs 16 626 500/= (form C2). That mistake has to be rectified in all justice and fairness. I find and am satisfied, therefore, that it is just and equitable that the relief sought by this application be I granted. As was done in

1996 TLR p96

the In re Mechanisations (Eaglescliffe) Ltd case (supra) therefore, I grant the application A as prayed, with costs to the applicant. The second respondent is hereby ordered to, within fourteen days from the date of the delivery of this ruling, rectify forms No 9 and C2 (plus his register of charges) to show that the amount secured by the debenture discussed in this case is US $904 000 (or its equivalent in other convertible currency) by B way of a foreign loan, or, simply US $904 000 without any reference to T Shs 16 626 500/=. The first respondent is ordered also to rectify his register of charges in relation to this loan so that it is shown therein that the debenture is security for US $904 000 only, as the debenture itself states. C

1996 TLR p96

D

[zRPz]SHABAN NASSORO AND ANOTHER v TANZANIA PORTLAND CEMENT CO. LTD AND ANOTHER 1996 TLR 96 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Mkude J

E

MISC CIVIL CAUSE NO 101 OF 1991
24 November, 1992 F
Flynote
Administrative Law - Orders certiorari and mandamus - Minister of Labour reversing, on appeal to him, a decision of the Conciliation Board - Whether Minister acted without jurisdiction - G Sections 26 and 51 of the Security of Employment Act - Regulation 4 of the Security of Employment (Disciplinary Proceedings) Regulations, 1965.
-Headnote
On 5 September 1990, the Applicants were summarily dismissed from their H employment at the First Respondent company without the required `Form No. 10'. The Applicants, aggrieved by their dismissal, then appealed to the Conciliation Board, which subsequently ordered, on 22 July 1991, the Applicants' reinstatement. Aggrieved by the Board's decision, the First Respondent appealed to the Minister of Labour (the Second I Respondent). In his decision dated 13 November 1991, the Minister reversed the Board's decision reinstating the Applicants.
1996 TLR p97
The Applicants challenge the Minister's decision on the grounds that First Respondent's A referral of the matter to the Minister was improper since First Respondent had not filled out `Form No. 10', allegedly required by law. The Applicants seek orders of certiorari, quashing the Minister's ruling overturning the Board's decision, and mandamus, ordering the First Respondent to reinstate the Applicants pursuant to the Board's decision. B
Held:

(i) The requirement in Section 51 of the Security of Employment Act, that the prescribed forms are to be used `for the purpose of this Act', is mandatory, and it follows that Form 10, as contained in the Third Schedule to Regulation 4 of the regulations to the Act, should have been used. C

(ii) The First Respondent had lost his right to appeal to the Minister since the proviso to Section 26(1) of the Act, that the employer's right of appeal is made subject to compliance with the `appropriate procedures', had not been complied with.

(iii) The First Respondent's appeal was accordingly not properly before the D Minister, who lacked jurisdiction to reverse the Board's decision.

(iv) The orders of certiorari are granted as prayed, and the Minister's decision dated 13 November 1991 is declared null and void.

(v) The Conciliation Board's decision dated 22 July 1991 is restored, and is ordered to be enforced. E

(vi) The Applicants are entitled to their costs.

Case Information
Ordered accordingly.
Mrugaruga for second respondent.
[zJDz]Judgment
Mkude J: This is an application for orders of certiorari to remove into this court and F quash the decision of the Minister for Labour dated 13 November 1991 and mandamus to enforce the

decision of reinstatement made by the Conciliation Board on 22 July 1991 as a decree of the court. Shaban Nassoro and Douglas Utonga, the applicants, were employed by Tanzania Portland Cement Company Limited, the first respondent herein, G as security officers. On 6 June 1990 the employer served them with proposal form No 1 imposing on them summary dismissal, alleging breach of para (h) of the Disciplinary Code under the Security of Employment Act 1964. The charge arose out of `irregularities in respect of cement loaded on 25 May 1990 in vehicle reg No 86985/84'. H

On 5 September 1990 the applicants were served with letters of summary dismissal from their employer without the required form No 10. The applicants were aggrieved by the disciplinary penalty imposed on them and appealed to the Conciliation Board. The Board heard the parties and by its decision dated 22 July 1991 ordered the I reinstatement of the applicants by the first respondent

1996 TLR p98

MKUDE J

herein. The first respondent, as employer, was aggrieved by the decision of the A Conciliation Board and appealed to the Minister for Labour. The decision of the Conciliation Board was reversed by the Minister and his decision dated 13 November 1991 and so the services of the applicants were now to be terminated instead of reinstatement ordered by the Conciliation Board. It is this decision which is being B challenged by the applicants mainly on the ground that the reference to the Minister was improper since the employer had not filled up form No 10 as required by law. The argument is that the purported appeal to the Minister was not properly before him and so C the Minister acted without jurisdiction when he reversed the decision of the Conciliation Board. Hence this application for orders of certiorari and mandamus.

Mr Mrugaruga, a senior labour officer who represented the second respondent filed a counter-affidavit in which he admits that the employer had not filled up form 10. For this D reason I fail to understand him when he says in his submissions that the Minister had followed the laid down procedure and was fair in reaching his decision.

It seems to me that the Minister cannot be said to have followed the laid down procedure E when he sits and determines an appeal which is not properly before him. The appeal to the Minister was referred to him under the provisions of s 26(1) of the Security of Employment Act, which provides as follows:

> `26(1) Where-- F
>
> (a) the summary dismissal or proposed summary dismissal of an employee is confirmed by a Board and, subsequent to such confirmation, the Committee, or, in a case to which the proviso to subsection (1) of section 21 or section 22 applies, the local representative of the G Union, informs the Board that it or he supports the employee, the employee; or
>
> (b) the summary dismissed or proposed summary dismissal of an employee is not confirmed by a Board, the employer--
>
> may, within fourteen days after receiving notice of the decision of the Board refer the same to the Minister;

H Provided that an employer may not refer a decision to the Minister in any case in which he has not complied with the appropriate procedures specified in head (b) of this Part.'

The applicant's complaint on the employer's failure to fill up form No 10 is based on the I provisions of s 51 of the Security of Employment Act which provides as follows:

1996 TLR p99

MKUDE J

`51. The Minister may prescribe forms to be used for the purpose of this Act and any forms prescribed A shall be used, with such variations as the circumstances require, for the matters and in the cases for which they are prescribed.'

The plain meaning of this provision is that if there is a form prescribed by the Minister B relating to any relevant matter then that form must be used. It is mandatory. The use of form No 10 is prescribed under the provisions of reg 4 of the Security Employment (Disciplinary Proceedings) Regulations, 1965 as follows: C

`4. A written note of the imposition of a disciplinary penalty in the form set out in the Third Schedule shall be handed to the employee if he is available: Provided that, save in the case of summary dismissal, where the employer hands to the employee a copy of a report to a labour officer in the form D 1A stating that a disciplinary penalty has been imposed, no other note of such imposition shall be required.'

In the present case the employer purported to dismiss the applicants summarily and there is no suggestion that the applicants were not available. It follows that the mandatory provisions of reg 4 had to be complied with by the employer purported to E dismiss the applicants summarily and there is no suggestion that the applicants were not available. It follows that the mandatory provisions of reg 4 had to be complied with by the employer by using form No 10 contained in the third schedule to the regulations. As it is admitted by Mr Mrugaruga that the employer did not comply with this requirement, it F follows that the `appropriate procedures' specified in head (b) (which deals with Imposition of Disciplinary Penalties by Employers) have not been complied with by the employer, Tanzania Portland Cement Company Limited. G

Accordingly I hold that the employer had lost his right to refer the decision of the Conciliation Board to the Minister under the proviso to s 26(1) of the Security of Employment Act. It follows that the appeal by the employer, the first respondent herein, was not properly before the Minister and so the Minister lacked jurisdiction when he H reversed the decision of the Conciliation Board. For that reason the orders of certiorari and mandamus will be issued as prayed and I hereby declare that the Minister's decision in this matter dated 13 November 1991 is null and void. Accordingly the decision of the Conciliation Board dated 22 July 1991 is hereby restored and I order that it be enforced according to law. I

The applicants will have their costs for this application.

1996 TLR p100

A

[zRPz]OMARI FAROUK KARAMALDIN v JUSTINAN R. KAHWA 1996 TLR 100 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Mkude J
B

CIVIL APPEAL NO 40 OF 1990
17 December, 1990
Flynote
Civil Practice and Procedure - Appeal - Failure to join an affected party as Second Respondent - C Effect.
-Headnote
On 10 August 1990, the Resident Magistrate's Court of Dar es Salaam at Kisutu issued an order returning motor vehicle TZ 77961 to the present Appellant. Some four days later (14 August 1990), and at the instance of an objector, one Mr Mbaga, the same court D reversed its decision of 10 August 1990 and ordered the vehicle in question to be released to Mr Mbaga on the basis that the Appellant failed to disclose to the court that proceedings in respect of the vehicle were pending in the High Court and that the order of 10 August 1990 was at variance with an interlocutory order already made by the High Court. E
Case Information
The Appellant appeals against the Magistrate's order of 14 August 1990.
Held:

(i) Any appeal seeking the reversal of the order made on 14 August 1990 can affect Mr Mbaga in his possession of the vehicle and such appeal must cite Mr Mbaga as a respondent in order to enable him to be heard. F

(ii) It is against the rules of natural justice to condemn a man without giving him a hearing.

(iii) The appeal is dismissed and no order is made as to costs.

Ordered accordingly. G
Chacha, for the Appellant.
Ndyanbo, for the Respondent.
[zJDz]Judgment
Mkude J: On 10 August 1990 the Resident Magistrate's Court of Dar es Salaam at H Kisutu issued an order seizing motor vehicle TZ 77961 and gave it to Omari Farouk Karamaldin, the appellant herein. This was in civil case No 93 of 1990 in which the appellant had successfully sued one Justinan Rugeiyamu Kahwa and the said vehicle was seized in satisfaction of the decree. Then on 14 August 1990, following objection I proceedings filed by one Mzava alias Praygod Mbaga, the same court reversed its decision of 10 August

1990 and set aside the order of seizure and directed that the vehicle TZ 77961 be A released to Mbaga, the objector. The reason for this step by the court is contained in its ruling which is the subject matter of this appeal. The ruling states in part:

'An application has been filed by Mr Mkatte objecting to an order which was made by this court B ordering the seizure of a motor vehicle which was in the possession of his client and handing it to the respondent. The order was made by this court on 10 August 1990. When that application was made, the respondent who was the plaintiff in this case did not disclose to this court at all that the motor vehicle which is the subject matter of this case is also a subject matter of a case which had C been filed at the High Court earlier on and it is still pending.

Apparently the order which has been made by this court is in a total variance with an interlocutory order which has already been made by the High Court. D

As correctly submitted by Mr Mkatte if at all this fact was disclosed to this court, this court would have never issued the order which is issued.'

It will be seen that the effect of the order arising from this ruling is to vest possession of E the vehicle in Mr Mbaga from whom the vehicle was taken under the order of 10 August 1990. It follows that any appeal seeking the reversal of the order from that ruling must cite Mr Mbaga as a respondent so that he can be heard before the order depriving him of the possession of the vehicle can be made. F

The present appeal falls short of that. Instead only Justinan Rugeiyamu Kahwa is cited as respondent and Mbaga does not feature at all. I note that one of the prayers of the appellant is

'that the first ruling of the same court be upheld and confirmed'. G

What the appellant calls `the first ruling' is the ruling dated 10 August 1990 which gave him possession of the vehicle after taking it away from Mbaga. In other words, the appellant is now asking this court to make an order under which the vehicle will be taken away from Mbaga while Mr Mbaga was not given the opportunity to be heard. The H appellant did not see it fit to join him in his appeal.

It is against the rules of natural justice to condemn a man without giving him a hearing. It is against the constitutionally guaranteed rights to deprive a man of property without a hearing.

Accordingly this appeal fails and I dismiss it. I make nor order as to costs. I

1996 TLR p102

A

[zRPz]SENZIA ALPHONCE MBAGA AND SIX OTHERS v. CHAIRMAN OF THE ELECTION COMMISSION 1996 TLR 102 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Mkude J

B

MISC CIVIL CAUSE NO 147 OF 1992

Flynote

Administrative Law - Orders of certiorari and mandamus - Application for leave to apply for - C Election Complaints Panel decision - Sections 17(2) and 18(2) of Part VII of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance (as amended by Act 55 of 1968) and Section 95 of the Civil Procedure Code.

Law of Limitation - Time-barring - Section 18(3) of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance. The Election Complaints Panel of the Electoral Commission of Tanzania in Election Complaint No.47 of 1990 had dismissed with costs an election complaint lodged by seven complainants, the present Applicants, against one Chediel Yohane Mgonja and the Attorney General. The Panel had upheld two preliminary objections raised by the Attorney General that the complaint was time-barred, and also that the complainants' allegations were not supported by any previous complaint made through the supervisory delegates' or the Returning Officer's reports, as required by Section 40(1) of the Elections Act.

-Headnote

The Applicants contended that, in upholding the preliminary objections taken, the Panel denied them their right to be heard by the Panel before it took its decision to dismiss their complaint.

Held:

(i) The six-month period stipulated in Section 18(3) of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance for the application for leave, must be taken to exclude the time required for obtaining a copy of the ruling from which it is sought to appeal.

(ii) The application is thus made in time and is allowed.

(iii) The application succeeds and leave is granted to the Applicants to apply for orders of certiorari and mandamus.

(iv) The costs of the application are made costs in the cause.

[zJDz]Judgment

Mkude J:

This is an application for leave to apply for orders of certiorari and mandamus made under the provisions of ss 17(2) and 18(2) of Part

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MKUDE J

VII of the Law Reform (Fatal Accidents and Miscellaneous Provisions) of s 17(2) and 18(2) of Part VII of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance (as amended by Act 55 of 1968) and s 95 of the Civil Procedure Code. The Election Complaints Panel of the Electoral Commission of Tanzania in Election Complaint No 47 of 1990 had dismissed with costs an election complaint by seven complainants, the applicants herein, against Chediel Yohane Mgonja and the Attorney-General. The Panel upheld two preliminary objections raised by counsel for the Attorney-General namely, that the complaint was time barred and that the allegations made by the complainants were not supported by any previous complaint made through the reports of the supervisory delegates or the returning officer as required by s 4C(1) of the Elections Act.

The applicants are aggrieved by the decision of the Panel and the gravamen of their complaint is that they were denied the right to be heard before the Panel made its decision dismissing their complaint. Having read the affidavit of Senzia Alphonce Mbaga and heard the oral testimony of Elinazi Elieza Mbalazi and the statement in support of the application I am satisfied that there are grounds for an application for orders of certiorari and mandamus.

Before I conclude this matter let me say a word or two on the question of litigation. Under the provisions of s 18(3) of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance the application for leave must be made not later than six months from the date of the decision or proceeding sought to be quashed. In the present case F the decision of the Election Complaints Panel was given on 5 July 1991 while the present application was filed on 19 May 1992. I note, however, that the secretary of the Electoral Commission of Tanzania sent the complainants' lawyers a copy of the ruling under cover of a letter dated 12 December 1991. The letter ref No ECC/C.50/52/II reads G as follows:

`Please refer to your letters Ref Nos YAM/285 dated first August 1991, 24 August, 1991 and 11th October 1991 on the above subject.

The delay in replying was caused by the absence of the entire secretariat up-country since February H 1991 for purposes of hearing election complaints. We have just come back to the office. Be that as it may, we forward herewith a certified copy of the ruling in this matter as requested.'

It follows that despite their effort in applying for a copy of the ruling early in August 1991 I the applicants did not receive it from the

Electoral Commission until a few days after 12 December 1991. Now, although there is A no express provision in the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance excluding the time requisite for obtaining a copy of ruling in computing the period of six months from the date of the ruling I hold that such time must B be excluded as is the case in several other pieces of legislation providing for limitation of time. I hold therefore that this application is made within time and I allow it.

In the final result this application succeeds and I hereby grant leave to the complainants/applicants to apply for orders of certiorari and mandamus. Costs will be in the cause. C

D

[zRPz]KANCHAN VENESH PAREKH v. AGHA KHAN EDUCATION SERVICES 1996 TLR 104 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Kyando J

E

CIVIL APPEAL NO 20 OF 1992
1 February, 1993 F
Flynote
Landlord and Tenant -- Housing Appeals Tribunal -- Application for leave to appeal thereto -- Whether out of time -- Rules 5 and 7 of the Housing Appeals Tribunal (Appeals) Rules, 1987.

Landlord and Tenant -- Housing Appeals Tribunal -- Important point of law -- Whether a basis for G appeal -- Rule 6 of the Housing Appeals Tribunal (Appeals) Rules, 1987.
-Headnote
On 15 November 1990, the Respondent filed an application before the Regional Housing Tribunal for the eviction of the Appellant from the Respondent's house. The application H failed. On becoming aware of the application's failure on 29 November 1990, the Respondent's advocate applied for the necessary documentation from the Regional Tribunal in order to lodge an appeal to the Appeals Tribunal. On 23 February 1991, an application was duly lodged with the Appeals Tribunal requesting leave for lodging a I notice of appeal and for appealing out of time. The Tribunal granted this application.
1996 TLR p105
The Appellant appeals against this ruling of the Appeals Tribunal. A
Held:

(i) In terms of Rules 5 and 7 of the Housing Appeals Tribunal (Appeals) Rules, 1987, the appeal itself and the notice of appeal, respectively, were out of time.

(ii) The Tribunal could, in terms of Rule 5, extend the period for lodging the appeal, B but it is nowhere provided that it could as well extend the period for lodging a notice of appeal.

(iii) The Tribunal accordingly had no power to extend the time for lodging a notice of appeal.

(iv) The requirement of Rule 6, which stipulates that an application for leave to C appeal out of time should set out the reasons why the application cannot be filed in time, must be satisfied and `sound reasons' be shown before consideration can be given to whether leave should be granted in order to allow a point of law to be determined.

(v) The Appeals Tribunal erred in taking into account factors not provided for by law in granting the application. D

(vi) The appeal succeeds, and the Appellant is awarded her costs of appeal.

Case Information
Ordered accordingly.
Cases referred to: E

1. Samson Kishosa Gabba v Charles Kingongo Gabba (HC) [1990] TLR 133

Kinguji, for the appellant.
Rutabingwa, for the respondent. F
[zJDz]Judgment
Kyando J:
This is an appeal from the decision of the Housing Appeals Tribunal granting an application by the respondent herein leave to lodge a notice of appeal and an appeal with the Tribunal out of time.
The facts of the matter are that the Aga Khan Education Services, the respondents G herein, filed an application in the Housing Tribunal of Dar es Salaam Region seeking the eviction of Mrs Kanchan Venesh Parekh, the appellant, from their house situated at Upanga, Dar es Salaam. The

application was unsuccessful, in terms of the decision of H the Regional Tribunal rendered on 15 November 1990. It (the decision) was apparently given or delivered in the absence of the parties. The respondent's advocate became aware of it on 29 November 1990. On becoming so aware he applied for the necessary documents from the Regional Tribunal to prepare an appeal to the Housing Appeals I Tribunal. On 23 February 1991 has lodged with the latter Tribunal and application for

leave for lodging a notice of appeal and for appealing out of time. The Tribunal as A indicated, granted the application, but the appellant was dissatisfied with that decision. She therefore brought this appeal to this court.

She is represented by Mr Kinguji, learned advocate, while the respondents are B represented by Mr Rutabingwa of the Tanzania Legal Corporation.

Rule 7 of the Housing Appeals Tribunal (Appeals) Rules, 1987 provides:

`7(1) Any party who desires to appeal to the Appeals Tribunal shall lodge a written notice in quadruple C with the Registrar or the Chairman of the Tribunal which passed the decision, order or determination appealed against.

(2) Every notice shall be lodged within fourteen (14) days of the date of the decision against which it is desired to appeal.' D

And Rule 5 provides as follows:

`5. No appeal to the Housing Appeals Tribunal from an order, decision or determination of Regional Housing Tribunal shall be made later than forty five (45) days from the date of the order, decision or E determination appealed from.

Provided that the Appeals Tribunal may, for good and sufficient cause grant any party leave to appeal out of time. When any such leave is granted, the Appeals Tribunal shall specify the date by which the appeal shall be lodged.' F

In the instant case, the Appeals Tribunal observed that the applicant's advocate should have filed the notice on 29 November 1990 when he learned about the decision of the Regional Housing Tribunal. If he did so, he would have been in time, for 29 November 1990 was the last day in computing the period of 14 days from the date of the decision of G the Regional Tribunal.

At p 2--3 of the cyclostyled ruling of the Appeals Tribunal it is stated:

`Both gentlemen members found no good cause for delaying to file notice of appeal immediately after H learning about the judgment on 29.11.90. Since notice of appeal is not accompanied by anything, there was no reason for waiting until he received a copy of the judgment.

Since no appeal can be accepted without notice of appeal being filed in time the second prayer for I leave to appeal out of time must also fail.

Indeed preparation of notice does not necessarily have to wait until you get a copy of judgment. It is A simply a notice that you have not been satisfied with the decision and that you are intending to appeal.

If after receiving copy of judgment you find there are no reasons or chances of success then you can withdraw it. Therefore when the applicant's advocate learned about the judgment on 29.11.90 which B was the last day for notice of appeal he would have filed the same on the same day or thereabout and not to sit down ideal till 23.2.91.'

All the above seems to me to be alright. But in spite of that the Tribunal, as shown, granted the application. In doing so it said it wanted to consider an important point of law C discerned in the proposed petition of appeal. The question which arises is whether the Tribunal had powers to extend time, after having found that both the notice and the appeal were out of time. Mr Kinguji says in his written submissions that the Tribunal had no such power. Mr Rutabingwa, on the other hand, says it had. Kinguji relies on Rule 7 of D the Housing Appeals Tribunal (Appeals) Rules, while Mr Rutabingwa relies on Rule 5.

In my view, the two rules should not be mixed up; they provide for different things altogether. While Rule 5 deals with appeals, Rule 7 deals with notice to appeal. Now E looking at the two rules closely, it is clear that while Rule 5 has a proviso, empowering the Appeals Tribunal to enlarge time for lodging of an appeal, Rule 7 which deals with notice has no provision for extension of time for lodging of a notice. In the present case, not only was the appeal out of time, the notice too was out of time. And whilst the F Tribunal could under Rule 5 extend the period for lodging the appeal it is no where provided that it could as well extend the period for lodging a notice. (And the Tribunal correctly notes that without a notice there cannot be an appeal.) The Tribunal acted without powers, and erred, therefore when it concluded in its decision: G

`In view of this applicant's application for leave to file notice of appeal out of time is hereby granted. He must do so within 14 days from today. ...' H

As amply shown, it had no power to enlarge the time for giving notice.

But besides the above point, did the Tribunal act in accordance with the law in granting the application on the ground that there was an important point of law in the intended I appeal only? Rule 6 of the Housing Appeals Tribunal (Appeals) Rules, provides:

1996 TLR p108

KYANDO J

A '6. An application for leave to appeal out of time to the Appeals Tribunal shall be in writing supported by an affidavit setting out the reasons why a petition of appeal was not or cannot be filed within forty-five days after the date of the decision or order against which it is desired to appeal, and shall be accompanied by the petition of B appeal or shall set out the grounds of objection to the decision or order.'

Mr Kinguji in his submissions argues that the Tribunal had no right to consider the petition: he says it should only have concerned itself with the reasons why the respondent failed to appeal in time. In C reply, Mr Rutabingwa contends that the requirement of a petition of appeal by Rule 6 implies that the Tribunal is supposed to look into the likelihood of the appeal succeeding 'on precisely whether there are grounds raised which may invite intervention of the Appeals

Tribunal'. In support of this he D sites the decision of Mwalusanya J in Samson Kashosha Gabba v Charles Kingongo Gabba (1) and quotes the following passage from the judgment of the learned Judge:

'... one of the most important points to consider whether or not to allow an appeal out of time is the likelihood of E success of the intended appeal. The points raised in the intended memorandum of appeal as well as the judgment of the trial court have to be considered to see if the intended appeal has any chances of success. While reasons for the delay in appealing in time are relevant, yet those are not the only material consideration in those matters.'

F Rule 6 specifically requires that the reasons for the delay must be stated in the affidavit in support of an application for leave to appeal out of time. As for chances of success, these are provided for only inferentially by Rule 6, by requiring that a copy of the intended petition should accompany the application. It follows therefore that under the Housing Appeals Tribunal (Appeals) G Rules, the important considerations are the reasons why a petition of appeal was not or cannot be filed within time. Not only this, the chances of success cannot by themselves be, in my view, the sole ground for granting an application for leave to appeal out of time. All the reasons advanced by H the respondents in this case were rejected by the Appeals Tribunal. So was it justified in granting it on the only ground that a point of law was involved in the case? In my view, it was not. That ground could only have been given considera tion of if there were also sound reasons why the I applicant for extension of time could not file his appeal in time.

1996 TLR p109

KYANDO J

But even if Mr Rutabingwa were right in the submissions he makes, thinking that chances of A success is the most important consideration in determining an application for leave to appeal out of time was the decision of the Appeals Tribunal in this case based on that consideration? Following is what the Tribunal said: B

'But in going through the petition together with the record to see whether if the application for appeal out of time is allowed there are overwhelming chances of success I have discovered that there is an important point of law involved, that is whether the respondent (appellant herein) is a protected tenant or a tenant at will. The C respondent's husband was employed by the appellants as a teacher whereby he was also offered accommodation on monthly rent by being deducted 15% of his salary. When he died his wife (respondent) continued to live there although not employed by the applicants. The applicants want her out to give room for their employees. She is refusing to vacate pleading protection as a protected tenant. The applicants are saying she is D not a protected tenant and therefore not entitled to the protections of protected tenants.

It will be in the interests of justice if this application is granted so that this issue can properly be dealt with.'

As can be seen, while the tribunal makes references to overwhelming chances of success, its E decision to grant the application does not rest on that ground. It rests instead on the consideration that there is an important point of law involved in the intended appeal and that it

will be in the interests of justice for the point to be properly dealt with by it, ie the Appeals Tribunal. There is no F finding at all by the Tribunal that the intended appeal has overwhelming chances of success either on the point it wanted to properly deal with or on any other ground. The consideration relied on by Mr Rutabingwa in his submissions therefore was not the consideration on which the decision of the Tribunal was based. G

In short, the Appeals Tribunal in this matter did not act within the ambit of the provisions of Rule 6 of the Housing Appeals Tribunal (Appeals) Rules in considering and determining the application for leave to appeal out of time. This was an error on its part for it took into account matters not provided for by law in granting the application. H

Finally, Mr Rutabingwa submits that he was, after all, in time in lodging the notice and the appeal. I do not think I should treat such submissions with any seriousness here. He is I the one who went before the Appeals Tribunal pleading that he was out of time in filing notice and his appeal and sought leave to file them out of

time. Today he says he was in time! Why did he not say so before the Appeals Tribunal? A The Tribunal agreed with him and held that he was out of time: he cannot now turn round and start submitting that he was in time. I reject such submissions by Mr Rutabingwa.

I held in the result, that the Appeals Tribunal had no power to extend the time for lodging B notice of appeal in this matter. As an appeal to the Appeals Tribunal has to be preceded by a notice of intention to appeal, no prayer or valid appeal could have been lodged in the matter in the absence of such notice. Finally, the Tribunal based its decision in granting the application for leave to appeal on wrong considerations. For C these reasons, this appeal succeeds. It is allowed and the appellant is awarded the costs of the appeal.

E

[zRPz]PARIN A.A. JAFFER AND ANOTHER v ABDULRASUL AHMED JAFFER AND TWO OTHERS 1996 TLR 110 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Mapigano, J

F

MISC. CIVIL CAUSE NO 48 OF 1992
18 February, 1993 F
Flynote

Land Law -- Land Register -- Rectification of -- Whether competent -- Whether final order can be G granted -- Sections 99 (1) (b), (d) and (f) of the Land Registration Ordinance, Cap.334, and Section 95 and Order 43 Rule 2 of the Civil Procedure Code, 1966.

Civil Practice and Procedure -- Locus standi of holder of power of attorney -- Whether a misjoinder H -- Order 3, Rule 2 (a) of the Civil Procedure Code, 1966.

Law of Limitation -- Time-barring --Legal proceedings to be instituted within six months -- Item 21 Part III of the First Schedule to the Law of Limitation Act, 1971 -- Whether the period may be I extended on reasonable or sufficient cause -- Whether a court can do so suo motu -- Section 14 (1) of the Law of Limitation Act.

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MAPIGANO J

-Headnote

The Second Applicant was once the owner of a house which he built on Plot 2254 Block A 83, Dar es Salaam, and held the property since 1955 on a 99-year term. Pursuant to the Acquisition of Buildings Act, 1971, the building was acquired by the government in 1971. The Second Applicant then left Tanzania to live in the United Kingdom for several years. The First Applicant is the daughter of the Second Applicant and the holder of a B power of attorney given by him.

On 7 April 1978, the Second Applicant executed a power of attorney in favour of his younger brother, the First Respondent, to acquire leasehold estates. In 1984, and by virtue of this power, the First Respondent applied to the Registrar of Buildings for the C grant of a long-term lease in the building in question. At the instance of the Registrar of Buildings, a deed was drawn in the name of the First Respondent, thus effectively making him the grantee of the lease in respect of two apartments. The First Respondent has since held himself out as the lawful owner of the estate and kept the Applicants out of the premises.

The Applicants contended that the present situation was the result of an incidence of D trust violated and that the entry in the land register was obtained by fraud or made under a mistake.

The Applicants accordingly sought to have the memorial in the land register corrected by substituting as grantee of the lease the name of the Second Applicant for that of the First Respondent. E

The Respondents took various points that, inter alia, the First Applicant had no right to be before the Court, notwithstanding her power of attorney, further that Order 43 rule 2 of the Civil Procedure Code is confined to interlocutory proceedings and cannot ground a final order, and finally that an application for rectification in terms of Section 99(1) of the F Land Registration Ordinance should first be made to the Registrar of Titles and that the matter only properly comes to the High Court by way of an appeal.

The Court was called upon to rule on these various points taken by the Respondents.

Held: G

(i) Order 3 rule 2(a) of the Civil Procedure Code allows the grantee of a power of attorney to launch an application on behalf of the grantor, and the language of the power in question expressly appoints the First Applicant `to commence prosecute legal proceedings of all laids (sic)'. H

(ii) Where, however, the principal under a power of attorney applies to or appears before a court, his attorney has no locus standi.

(iii) The First Applicant is accordingly improperly joined as a claimant for rectification, but her affidavits should not therefore be inadmissible and valueless, and she should thus in justice be deemed to be a witness. I

(iv) Cap. 334 does not prescribe the procedure for making an application

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MAPIGANO J

A for rectification, and it is a `wrong idea' that Order 43 rule 2 does not embrace applications for final orders.

(v) Section 99(1) of Cap. 334 offers a choice of forum for rectification between the High Court and the Registrar of Titles: one can either make a requisition to the Registrar, or institute a legal action in the High Court. B

(vi) Section 14(1) of the Law of Limitation Act permits the Court the power, suo motu and for any reasonable or sufficient cause, to extend the six-month period allowed by law to institute an appeal or application.

(vii) For the purposes of an extension of time in terms of Section 14(1), the C Applicants' ignorance or bona fide mistake of law may be taken into consideration in determining whether the discretion ought to be exercised.

(viii) The period of limitation is extended to the day upon which the application was instituted in this Court.

Ordered accordingly. D

Case Information

Mapunda, for the applicant.

Maira, for the first respondent.

Ismail, for the second respondent.

Shungu, for the third respondent.

[zJDz]Judgment

Mapigano J: E

Parin A A Jaffer along with her father Amirali A Jaffer have jointly applied for rectification of the land register. They are advocated for by Dr Mapunda. Their application is made under s 99(1)(b), (d) and (f) of the Land Registration Ordinance, cap 334, as well as s F 95 and Order 43 rule 2 of the Civil Procedure Code, 1966. The respondents are Abdulrasul A Jaffer, the National Housing Corporation and the Registrar of Titles who are represented by Mr Ismail, Mr and Mr Shungu, respectively.

Objection has been taken as to the form in which the application is presented, the G joinder of Parin and the whole competency of the application. This is what I am now called upon to rule on.

The second applicant Amirali was once the owner of Plot 2254 Block 83 Mwisho/Zaramo Streets, Dar es Salaam, and held the property since 1955 on a 99 year term and H happened to build a house thereon. In 1971 the building was acquired by the Government and vested in the Registrar of Buildings. This was in the wake of the enactment of the Acquisition of Buildings Act, 1971. Amirali had then left Tanzania and gone to the United Kingdom where he stayed for several years. I

On 7 April 1978 Amirali executed a power of attorney, annexure

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MAPIGANO J
PAJ2, which, inter alia, conferred authority on his young brother, ie the first respondent, A to acquire leasehold estates. In 1984 the first respondent made an application to the Registrar of Buildings by virtue of the power of attorney for grant of a long term lease in the acquired building. He was probably stimulated and authentically afforded a sense of B hope by a scheme established by the Government under which an ex-owner of an acquired building could be granted such lease in respect of the portion he occupied at the time of the acquisition.
His exertion met with success, though the power had by then yet to be filed at the Land Registry as required under s 96(1) of cap 334. (It has since been revoked by Amirali.) C Prima facie, it cannot be said that the first respondent's application, ie annexure PAJ3, travelled outside the authority given to him vide annexure PAJ2. There was however some questionable development. At the instance of the Registrar of Buildings, as D evidenced by annexure PAJ4, the lawyers drew a deed in the name of the first respondent and this effectively made the first respondent the grantee of the lease in respect of two apartments. The lease was registered under Filed Document No 75149 and the first respondent has thenceforth held himself out as the lawful owner of the E estate and kept the applicants out of the premises, which has gone hard with them.
In short, the applicants are aggrieved by the grant of the lease to the first respondent. They claim that the disposition was an incidence of a trust violated, that annexure PAJ2 F did not authorize the first respondent to acquire title to the lease in his own name, and that the entry in the land register was obtained by fraud or made under a mistake. All this is denied by the respondents and, accordingly, one of the major issues in this long drawn out dispute is whether or not the lease in question is defeasible by reason of fraud and/or mistake. G
As indicated at the outset, the applicants seek to have the memorial in the land register corrected by substituting as grantee of the lease the name of the second applicant for that of the first respondent.
The first material ground of the preliminary objection is that the first applicant has no H right to be heard in this application, notwithstanding that she has been give a power of attorney, annexure PAJ10, by the second applicant. Mr Ismail has actually gone a step further and taken objection to the validity of that power, arguing that the bringing of this I application is outside the terms of that power, and drawing my attention to the provision of Order 3 Rule
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MAPIGANO J
2(a) of the CPC. Accordingly, it has been submitted, first, that her name should be A struck out from the record; and, secondly, that her affidavits should be excluded.
As every lawyer perfectly understands, a power of attorney is a formal instrument by which one person empowers another to represent him or act in his stead for certain B purposes. Under Order 3 Rule 2(a) CPC a grantee of such power is competent to go to law and make application on behalf of the grantor, providing that the instrument gives him such authority, and I am acutely aware that the terms of such instrument should receive a strict construction as giving only such authority as it confers expressly or by C necessary implication. Having examined

annexure PAJ10, I am clearly of the opinion that its language brings it squarely within the operation of Order 3 Rule 2(a). For it expressly appoints the first applicant `to commence prosecute legal proceedings of all laids'.

On the other hand it is imperative under Order 3 Rule 2(a) that all applications, acts and D appearances be made or done by the attorney on behalf of and in the name of the principal. By the same token where the principal himself makes or does an application, appearance or act, his attorney has no locus standi. In the premises I have to sustain E the submission that Parin is improperly joined as a claimant for rectification. At the same time I am unable to endorse the view that their bona fide misjoinder should render Parin's affidavits inadmissible or valueless. I accept the suggestion that Parin should in justice be deemed to be a witness.

It will be recalled that one of the enabling provisions cited on the chamber summons is F Order 43 Rule 2 CPC. The second ground concerns the applicability of that provision. Mr Ismail has pressed upon me the argument that this provision is confined to interlocutory proceedings and that no final orders can be made thereunder. The complementary G argument of Mr Maira is that rectification should have been pursued by way of a suit, in view of the strong and serious resistance thereto. Dr Mapunda has disagreed with all this, point out that Cap 334 does not prescribe the procedure of making an application for rectification and the shape the application should assume and I go with him. H

I think there can be no doubt that a person who wants the register rectified can apply to the High Court in terms of s 99 and that the Court can entertain the proceeding irrespective of whether it is contentious. Dr Mapunda is right that there is no provisions in Cap 334 as to the procedure of making such application. In the circumstances the I same rules of procedure and practice have to be

resorted to, so far as they can be made applicable, as are currently in force in respect of A ordinary applications before the High Court.

It may be observed by the way that strictly Cap 334 does not limit the mode of the proceedings in which rectification may be sought. So it is perfectly arguable that one of the methods of compelling a rectification of the register is through a decree pronounced B on a suit, or a mandamus, particularly when the fault is alleged to lie with the Registrar.

It is a wrong idea that Order 43 Rule 2 does not embrace applications for final orders. Take, for instance, the order that can be delivered under s 9 CPC that a suit is barred by C res judicate, which finally disposes of the rights of the parties in the suit. Surely such order is obtainable upon an application brought in the form prescribed by Order 43 Rule 2?

According to Mr Ismail, and this is the third ground, an application for rectification under D s 99(1) must be made to the Registrar of Titles first and that the matter properly comes to the High Court on appeal only.

Mr Maira has grappled with the `if' aspect of the matter. Even if the High Court has original jurisdiction, he says, the matter should, as a mater of procedure and practice, be E submitted to the Registrar for him to inquire into and decide, before recourse is had to litigation. Mr Maira

takes some satisfaction from the provision of s 13 of the CPC his implied assumptions being, therefore, that this is a suit and that the CPC is applicable.

Dr Mapunda has a different view. His submission is that s 99(1) of Cap 334 gives F concurrent power to the High Court and the Registrar to entertain applications for rectification. He has also charged the Registrar with some blame for the distress the applicants have undergone and alleged that he, the Registrar, has advised the G applicants to go to court, clearly implying that it would have been a futile exercise to make an application to him.

It is manifestly clear upon the applications, affidavits and the appendant papers that no distinct request or demand has been made to the Registrar in respect of the relief sought. And looking critically at those documents I can hardly see any demonstrable H complaint levelled against the Registrar. There is also nothing material to support the allegation that the Registrar has advised the applicants to sue for rectification by court process. In actual fact the attitude of certain higher quarters, as disclosed by correspondence, was that Amirali should address his complaint to the Registrar. I

In view of the clear language of s 99(1) of Cap 334, it seems to me

rather absurd for counsel to argue that an application for rectification is not cognizable A by the High Court in the first instance. Quite clearly that section offers a choice of forum between the High Court and the Registrar: one can either make a requisition to the Registrar for rectification, or institute a legal action in the High Court in that respect. B

There is, in my opinion, a good sense indeed and sound juridical reason for the legislation of such option. Circumstances may be easily envisaged where the exclusion of the High Court from the exercise of original jurisdiction in the matter would palpably be injudicious and preposterous. I would point to one such circumstance in particular. C Consider a situation where a person imputes deliberate fault to the Registrar in relation to an entry in the register, it would undoubtedly be a serious anomaly if the law were to lay down that he should still go to the Registrar for remedy.

Section 13 of the CPC insofar as it is relevant enjoins that every suit shall be D commenced in the court of the lowest grade competent to try it. The words of this section do not appear to be sufficiently apt to cover the circumstances of this application, because `court of the lowest grade' in the context of that section refers only E to courts to which the CPC applies. Nevertheless I prefer the view that it is a good policy which may be extended to analogous situations. This is out of the recognition that the rule is meant to check the overcrowding of legal actions in the courts of the higher grade. Thus where the Law provides extra-judicial machinery alongside a judicial one for F resolving a certain cause, the extra-judicial machinery should, in general, be exhausted before recourse is had to the judicial process.

Of course s 13 is only a rule of procedure and not of jurisdiction, and, therefore, the court of the higher grade is not bound to take advantage of it and may, if it prefers, retain the suit. In the light of what the Registrar has deposed in his affidavit, it is only proper G that this application be adjudicated upon by this Court, unless it is barred otherwise. That brings me to the last

ground. It is said for the respondents that the application is time-barred, even granting that the cause of action accrued in 1988 as the second H applicant seems to contend. In the view of Mr Ismail the matter falls under item 21 in Part III of the First Schedule to the Law of Limitation Act, 1971, which prescribes that an applicant must take legal proceeding inside of six months. Against that Dr Mapunda has argued that the proceedings should properly be deemed to fall under item 22 in Part I of I the Schedule which prescribes a period of twelve years, in as much as the subject-matter is essentially the recovery

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MAPIGANO J

of a lease. Mr Ismail is right. All applications under the CPC, the Magistrates Courts Act A or other written law for which no period of Limitation is provided in the Law of Limitation Act or any other written law, fall under item 21 in Part III of the Schedule.

Pausing here and with that in mind, I do imagine that a more inured and shrewd forensic B advice to the applicants would have been to bring the matter to this Court in the form of a suit, or to make an application to the Registrar of Titles to which the provisions of the Law Limitation Act are not applicable.

But as just indicated, that is not the end of the matter. Looking at the circumstances C surrounding this case, I have come to take the view that it is one that admits of the application of s 14(1) of the Law of Limitation Act, and it is also my considered judicial view that this Court can proceed to do so suo motu. That section provides that the court may, for any reasonable or sufficient cause, extend the period of limitation for the D institution of an appeal or an application, other than an application for the execution of a decree, notwithstanding the provisions of the Act.

I have been driven to that conclusion upon considering the sustained but vain extra-legal efforts that the applicants have made to bring their grievance and plight to the attention of E the authorities, including the President. And there can hardly be any doubt that they have done so in total ignorance of the law of limitation.

Provisions which give exceptions to the operation of the statute are, in principle, to be interpreted literally. Accordingly, in the contemplation of s 14(1) of the statute the term F `reasonable or sufficient cause' should be given such construction. Section 21 of that statute which relates to analogous fruitless proceedings, though not applicable to this matter, indicates that the Legislature intended to show indulgence to a diligent party who G has acted bona fide under a mistake, and the persuasive Indian authorities hold that the equity of that section applies equally to cases arising under s 14. Indeed, all the High Courts in India are now in agreement that for the purpose of s 14 ignorance or bona fide mistake of law may be taken into consideration in determining whether the discretion ought to be exercised. H

I will, and do hereby, extend the period of limitation to the day the application was instituted in this court, and with that I overrule the preliminary objection. I

1996 TLR p118

A

[zRPz]LAWRENCE MATESO v REPUBLIC 1996 TLR 118 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Samatta JK

MISC. CRIMINAL CAUSE NO 14 OF 1993 B
31 May, 1993
Flynote
Criminal Practice and Procedure - Bail pending appeal - Principles applicable - Section C 368(1)(a)(i) of the Criminal Procedure Act, 1985.
Criminal Law - Malicious damage to property - What constitutes the offence.
-Headnote
The Applicant was convicted of malicious damage to property in the District Court of the D Ilala District, contrary to Section 326(1) of the Penal Code, and sentenced to six months' imprisonment. The present is an application for bail pending the outcome of an appeal.
In the course of its ruling, the Court enunciated certain well-established principles to be followed when determining such applications:

(i) The principle that bail is a right is applicable only to cases where the accused E person has not yet been convicted;

(ii) Bail pending an appeal can be granted only where there are exceptional and unusual reasons or where there is an overwhelming probability that the appeal would succeed;

(iii) Where an argument on the facts needs detailed references to the text of the F evidence or the judgment to support it, it cannot be said that the appeal has overwhelming chances of success;

(iv) Since no general principle exists that a person released on bail pending appeal will not be sent back to prison if his appeal fails, the court is reluctant to order that a convicted person be released on bail pending the outcome of the appeal; G

(v) Deciding whether bail in a matter such as the present should be granted involves balancing the liberty of the individual with the proper administration of justice;

(vi) Conversely to an application for bail pending trial, the onus in an application for bail pending an appeal is on the individual, who must satisfy the court that H justice will not be jeopardised, and that either exceptional and unusual reasons exist for bail, or that his appeal has overwhelming prospects of success.

Held:

(i) The learned Magistrate erred at the trial in not considering and deciding whether I the subjective element of the offence of malicious damage to property was present.
1996 TLR p119

(ii) This failure by the learned Magistrate was so serious as to be capable of A constituting a warrant for faulting his decision.

(iii) There were overwhelming prospects that on appeal the Court would hold that the Applicant's version of the events was a sufficient defence to the charge.

(iv) There were accordingly overwhelming prospects of success in the appeal. B

(v) The application was allowed, and the Applicant was granted bail in the sum of Shs. 100,000/= with two sureties, each in the like sum.

Case Information

Cases referred to: C

1. Raghbir Singh Lamba v R. [1958] EA 337
2. In re R v Sakerbai MA Gangji [1967] HCD n.243
3. Hassanali Walji v R [1968] HCD n.174
4. Attilosio s/o Mosca v R. [1968] HCD n.295
5. Mipawa v R. [1971] HCD n.62 D
6. Singh v R. [1971] HCD n.149
7. Michael v R. [1972] HCD n.56

Dr Lamwai, for the appellant.

Kamba, for the respondent. E

[zJDz]Judgment

Samatta JK:

In this application, Lawrence Mateso, applies, under s 368(1)(a) of the Criminal Procedure Act 1985, for bail pending the hearing of his appeal. He was convicted by the District Court of Ilala District of malicious damage to property, contrary to s 326(1) of the F Penal Code, and was sentenced to six months' imprisonment.

The subject of the charge laid at the applicant's door was a structure which had been constructed on Plot No 132, Mbezi Beach, Dar es Salaam. It was not seriously disputed that in May last year the applicant, using some labourers, wilfully demolished this G structure. Was the demolition unlawful? The prosecution alleged and sought to prove that it was. Their case was that the plot was the property of one Jafari Ngonyani, who was PW3 at the trial. The witness gave evidence to the effect that, following instructions H from the President of the United Republic of Tanzania, the plot was vested in him by the relevant public authority. He produced as an exhibit a certificate of occupancy in his name. The applicant, on the other hand, gave evidence which was intended to demonstrate that the demolition was lawful. Briefly, his case was that the plot in question I was his; it was vested in him in 1988. Four years later one Chilemba disputed before the District Court his (the appli-

cant's) ownership of the plot, but he lost the case. The applicant produced a copy of the A court's judgment, entered ex-parte, as an exhibit. The burden of the applicant's story was in essence that he believed that he was entitled to demolish whatever was on the plot. Although he did not expressly say so, he seemed to base his contention on a B concept equivalent to the concept underlying the Latin maxim of great antiquity: Aedificatio solo, solo cedit (What is built on the land is to be regarded as having become part of the land). Unfortunately, the learned trial magistrate does not appear to have given his mind to this aspect of the defence case.

The principles which this Court applies in determining applications for bail pending C appeal are I think, well established now. They include the following:

1. A clear distinction has to be drawn between the granting of bail to a person yet D to be tried and granting bail to a convict. It is of great importance that it should be clearly understood that the principle that bail is a right is applicable only to cases where the accused persons have not yet been convicted, it does not apply to cases, like the one now before me, where the accused persons have been convicted. E

2. Bail pending the hearing of an appeal can be granted only if there are exceptional and unusual reasons or where an overwhelming probability that the appeal in question would succeed exists; see Raghbir Singh Lamba v R (1); In F re R v Sakerbai M A Gangji (2); Hasanali Walji v R (3); Attilosio s/o Mosca v R (4); Mipawa v R (5); Singh v R (6) and Michael v R (7).

3. It cannot be said, where an argument on the facts needs detailed references to the text of the evidence or the judgment to support it, that the appeal has G overwhelming chances of success: see Hassanali Walji's case (supra).

4. There is no general principle that a person released on bail pending the hearing of an appeal will not be sent back to prison if his appeal fails. The non-existence H of such a principle gives rise to a reluctance on the part of the court to order that a convicted person be released on bail pending the hearing of his appeal.

5. The execution of the task of deciding whether a person who has been convicted should be granted bail involves balancing the considerations of the I liberty of the individual and proper administration of justice.

1996 TLR p121

SAMATTA JK

A 6. Whereas in an application for bail pending trial the onus lies on the prosecution to satisfy the court that the interests of justice would or might be jeopardised if the accused is released on bail, in an application for bail pending the hearing of an appeal the onus is upon the applicant; he must satisfy the court that justice will not be endangered and that either exceptional and unusual reasons exist or B that his appeal has overwhelming chances of success. The court will grant him bail only if it is satisfied that justice requires that that be done.

In the instant case would I be justified to grant bail to the applicant? With the above C principles in mind, I proceed to answer that question. What constitutes the offence of malicious damage to property? I start with that. Before a person is convicted of that offence, malice, inter alia, must be admitted or proved. But the word malice here is not used in the sense understood by the layman; it is used in a technical sense. Here the D word does not necessarily mean personal spite against the owner or possessor of the damaged property. It is enough if the accused intended wrongful damage to the property, because if that intention is admitted or demonstrated to have existed, the law will presume malice. The presumption is, of course, rebuttable. It follows from all this that a E bona fide assertion of right-whether or not the belief was founded in law-is, putting it in general terms, a sufficient defence to a charge of malicious damage to property. The decisiveness does not lie in the lawfulness of what the accused did but in the question whether the accused believed he was entitled to do what he did. The accused's

belief F need not be a reasonable one, for the unreasonableness of the belief is a matter which goes only to credibility. The unreasonableness of the alleged belief may be so great as to lead, when considered with other factors to an irresistible conclusion that the accused G could not have acted bona fide when he damaged the property in question. But where it is accepted (or where there is a reasonable doubt on the matter) that the accused damaged the property under the honest but mistaken belief that the said property was his or that he had a right to do what he did to it he has not committed the offence of H malicious damage to property. In the instant case, as already pointed out, the learned trial magistrate did not address himself to the important task of deciding what the accused believed when he caused the destruction of the structure on the disputed plot. While guarding myself against any statement which could be taken as amounting to expressing opinion on the merits of the appeal, I cannot but say that the learned I magistrate's omission was a very serious one, parti-

cularly when it is considered in the light of one of the ingredients of the offence of A malicious damage to property I have discussed above. In my opinion the error is so serious as to be capable of being considered by this Court as constituting a warrant for faulting the learned magistrate's decision. Clearly, this was a case in which each B claimant-the complainant, Jafari Ngonyani, and the applicant-was armed with an official document which on the face of it supported his claim of ownership of the disputed plot. In these circumstances, it was absolutely necessary for the learned magistrate to consider the defence of claim of right and make a finding as to whether the applicant C caused the destruction of the structure in the honest belief that the plot was his and, therefore, he had the right in law to cause the said destruction. In what appeared to me to be a half-hearted submission Mr Kamba, counsel for the Republic, contended that the D applicant's appeal has `a narrow chance of succeeding'. With respect, I disagree. For reasons I have endeavoured to give, albeit briefly, I agree with Dr Lamwai, counsel for the applicant, that the appeal has overwhelming chances of success. In my opinion, there are overwhelming chances that after hearing the appeal this Court will hold that the story which the applicant put before the Trial Court was a sufficient defence to the E charge he faced. Accordingly, I allow the application. The applicant is granted bail pending the hearing of the appeal in the sum of Shs 100 000/= with two sureties each in the like sum. F

[zRPz]CO-OPERATIVE AND RURAL DEVELOPMENT BANK v FILTON (TANZANIA) LIMITED 1996 TLR 122 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Mackanja J
G

CIVIL CASE NO 122 OF 1993 H
10 December, 1993

Flynote

Civil Practice and Procedure - Consolidation of civil cases - Oral application for - Whether I competent - Rule 2 of Order 43 of the Civil Procedure Code.

1996 TLR p123

-Headnote

Filton (Tanzania) Ltd is the defendant in a main action and the Applicant in this A application. The Co-operative and Development Bank is the plaintiff in the main action and the Respondent in this application.

The Applicant sought an order that he be allowed to proceed with an oral application for the consolidation of civil cases under various case numbers. The application was B brought under the proviso to Rule 2 Order 43 of the Civil Procedure Code, which states that all applications under the Code shall be made by chamber summons supported by affidavit `provided that the court may where it considers fit to do so, entertain an application made orally ....'.

Held:

C (i) An application by chamber summons supported by affidavit gives two important opportunities to the respondent: notice of the remedy which the applicant seeks, and the course the applicant will take in establishing the justification for the remedy sought.

(ii) Unless there is something approximating an emergency, the Court will not lightly abandon a procedure and a practice which have been tested by time and D are well-founded.

(iii) An oral application may accordingly be allowed in very rare and non-contentious litigation, or where prompt action is required to protect the parties' interests, such as immediately upon the pronouncement of judgment.

(iv) There is neither urgency nor the need to depart from the established rules of E practice and procedure.

(v) The application to proceed orally is dismissed with costs.

(vi) The defendant is granted leave to lodge an application by chamber summons supported by affidavit, in the normal manner, with costs to be in the cause. F

Case Information

Ordered accordingly.

Kisusi, for the plaintiff.

Chando, Mchora and Kanabar for the defendant.

[zJDz]Judgment

Mackanja J: G

Mr Mchora, one of the learned defence counsel, is applying for an order that he be allowed to proceed with an oral application for consolidation of Civil Cases No 122, 123, 124, 125 and 126, all of 1993. This application is made under the proviso to Rule 2 of H Order 43 of the Civil Procedure Code. Rule 2 makes it mandatory, unless otherwise provided, that all applications under the Civil Procedure Code shall be made by a chamber summons supported by affidavit:

I 'Provided that the court may where it considers fit to do so, entertain an application made orally....'

1996 TLR p124

MACKANJA J
An oral application may also be made where all the parties to the suit by a written A memorandum signed by them or their advocates consent to the order applied for. Basically the oral application is sought because the written application has not been admitted by the Honourable the Principal Judge. In that connection Mr Mchora applied to B the court to withdraw all the papers relating to the written chamber application which was not admitted.
Mr Kisusi, learned counsel for the plaintiff/respondent, does not oppose the withdrawal of the written documents relating to the written application. He, however, opposes the C institution of the oral application on the grounds that the defence has neither suggested nor indicated why this is a fit matter for an oral application as opposed to the normal court practice of written applications supported by affidavit. Learned counsel has argued, and I think quite correctly, that there must be very good reasons why a party to a civil D action will be allowed to institute proceedings save according to the general practice of the Court. And since the proviso referred to grants discretionary powers, Mr Kisusi's contention that that discretion should, as is normal practice, be exercised judiciously, is also sound.
Learned counsel for the plaintiffs has raised another point, that the application, if made E orally, will affect six cases. That the mere number of cases entails the consideration of a collosal amount of facts in order to determine whether the six cases are fit for consolidation. He has raised concern that it is extremely difficult to digest orally facts involving six cases. There is no doubt that if the application is made in writing the F respondents will get advance notice which will enable them to prepare themselves; this is a fact which cannot be over emphasized. And, of course, as learned counsel for the plaintiffs/respondents has pointed out, instructions which were given by the Honourable G the Principal Judge, if any, are of an administrative nature an are therefore not binding on this Court. This argument brings us to one important consideration; under what circumstances can an oral application be made?
Mr Mchora argues that the circumstances which are required by the proviso came in place after the honourable the Principal Judge made the directive. I have gone through the record and I find no such instructions from the Honourable the Principal Judge, which form part of the record of this case. It is important to note, however, that this application is brought under s 95 of the Civil Procedure Code. According to Mr Mchora, applications of this nature are meant to provide avenues of justice which are not available in the

orders and that, ipso facto, this application falls under Order 43 Rule 3. I have examined A the law cited and I find nothing from what Mr Mchora has said which would justify this application to be proceeded with orally and not according to the general practice of this Court whereby applications are made by Chamber Summons supported by affidvit. B
The nature of civil litigation is such that it offers equal opportunity to both parties. It is not one of surprises. Every stage in the process of litigation is regulated by rules which create an elaborate procedure for pleading. As a general rule, the defendant or respondent, as the case may be, is entitled to know the case against him by advance C notice by way of a summons of

whatever nature. And by the established practice of this Court all chamber summonses are supported by affidavit. This procedure has not been maintained over the ages for nothing. For one thing, an affidavit is evidence which sets D out how the applicant intends to establish the justification for the remedy he seeks from the court. The affidavit also provides evidentiary proof of what it contains. So that an application by chamber summons supported by affidavit gives two important opportunities to the respondent: notice of the remedy which the applicant seeks and the E course the applicant shall take in establishing his justification for the remedy. Unless there is something like an emergency, therefore, the Court will not lightly abandon a procedure and practice which have been tested by time and which are well-founded. In this regard an oral application may be allowed to proceed in very rare and non-contentions litigation; or where it is necessary to take prompt action for the purpose F of safeguarding the interest of the parties, especially immediately after judgment is pronounced. The purpose of such an application, therefore, should be designed to maintain the status quo such as during intermediate periods between execution of decree and hearing of an appeal against such decree; to prevent prejudice to the G applicant and to prevent one party from outwitting the opposite party by maintaining a fair balance between them.

I see neither the urgency nor the need in the instant application which justifies a deviation from an established procedure and general rule of practice. In the result the application H to proceed orally fails and is dismissed with costs. It is directed that the defendant may, if he so wishes, lodge an application by chamber summons supported by affidavit in line with the established practice of this Court. Costs shall be in the course. I

1996 TLR p126

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[zRPz]KHADIJA ABDALLAH v. AJESH VAJA AND TWO OTHERS 1996 TLR 126 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Mkude J

B

MISC CIVIL CAUSE NO 127 OF 1992

25 March, 1994

Flynote

Civil Practice and Procedure -- Stay of execution -- Jurisdiction of Resident Magistrate's court to C grant such a stay -- Order 21 rule 24 of the Civil Procedure Code.

Civil Practice and Procedure -- Revision -- Application for -- Section 79(1) and Order 43 rule 2 of the Civil Procedure Code.

-Headnote

The Respondents were ordered to vacate certain premises pursuant to a decree of the D Dar es Salaam Regional Housing Tribunal passed on 19 October 1992. Upon lodging a notice of appeal with the Housing Appeals Tribunal, the Respondents filed for (and duly obtained) an order for

stay of execution from the Resident Magistrate at Kisutu in terms of Order 21 rule 24 of the Civil Procedure Code. E

The Applicant applies for the revision of the Magistrate's order, in terms of Section 79(1) and Order 43 rule 2 of the Civil Procedure Code. The Applicant contends that the Magistrate granted the stay of execution without jurisdiction and/or pursuant to a material irregularity and accordingly asks that execution be ordered to proceed forthwith. F

Held:

(i) The only reason the Resident Magistrate's court granted a stay of execution was because a notice of appeal had already been filed in the Housing Appeals Tribunal.

(ii) The mere filing of a notice of appeal cannot amount to sufficient cause, for the G purposes of Order 21 rule 24, for an order staying execution by the executing court.

(iii) No sufficient explanation was given as to why the application for stay of execution was brought before the executing court and not to either the Regional Housing Tribunal or the Housing Appeals Tribunal.

(iv) The order of the Resident Magistrate's court staying execution is therefore ultra H vires its powers.

(v) The Resident Magistrate's order is quashed, and execution is permitted until such time as a lawful order for stay of execution is issued.

Case Information

Ordered accordingly.

Mwajasho, for the applicant. I

Magessa, for the respondent.

1996 TLR p127

[zJDz]Judgment

Mkude J: A

The Dar es Salaam Regional Housing Tribunal passed a decree on 19 October 1992 under which the respondents herein were to vacate certain premises. The respondents promptly lodged a notice of appeal against the decision in the Housing Appeals Tribunal B and on 27 October 1992 they filed an application for stay of execution in the court of the Resident Magistrate at Kisutu under Order 21 Rule 24 of the Civil Procedure Code. The application was heard on 16 November 1992 and in a ruling dated 19 November 1992 the respondents herein were granted stay of execution as prayed. This application C for revision under s 79(1) proviso to Rule 2 thereof is brought by the decree holder complaining that the court of the Resident Magistrate had acted without jurisdiction and/or with material irregularity when it granted the order to stay of execution. Mr Mwajasho, learned advocate, appeared for the applicant/decree holder while Mr D Magessa, learned advocate, appeared for the respondent/judgment debtor. Mr Mwajasho urged the court to revise the ruling of the Resident Magistrates' Court and order execution to proceed forthwith.

Mr Mwajasho put forward three grounds for seeking revision of the order for stay of E execution by the Resident magistrates' Court, viz:

(i) that no sufficient cause was shown by the respondent as to why up to 19 November 1992 they had failed to make an application for stay to either the F court which passed the decree (ie the Dar es Salaam Regional Housing Tribunal) or to the court having appellate jurisdiction in respect of the decree (ie the Housing Appeals Tribunal).

(ii) that by granting an order for stay of execution for an unspecified period and G exceeding thirty days from the date of the decree (ie 19 October 1992) the Resident Magistrate's Court exceeded its jurisdiction.

(iii) that by entertaining the application for stay of execution when there was no appeal preferred from the decree of 19 October 1992 the court exercised its H jurisdiction with material irregularity.

The three grounds relied on by Mr Mwajasho are in accordance with the provisions of s 79(1) of the Civil Procedure Code spelling out the situations in which this court can I exercise its revisional jurisdiction. I will therefore deal with each ground in turn.

1996 TLR p128

MKUDE J

It is common ground between the parties that the Resident Magistrate's Court at Kisutu A acted in the capacity of an executing court and the respondents had made their application for stay of execution under the provisions of Order 21 r 24(1) of the Civil Procedure Code, which provides as follows:

B `24(1) The court to which a decree has been sent for execution shall, upon sufficient cause being shown, stay the execution of such decree for a reasonable time, to enable the judgment debtor to apply to the court by which the decree was passed or to any court having appellate jurisdiction in respect of the decree or the execution thereof, for an order to stay execution or for any other order C relating to the decree or execution which might have been made by such court of first instance or appellate court if execution had been issued thereby, or if application for execution had been made thereto.'

One thing that stands out clearly in this provision is that the power of the executing court D in ordering stay of execution is very much restricted. The real power for stay of execution is vested in the court that passed the decree and the court having appellate jurisdiction in the respect of the decree. The power enjoyed by the executing court has the following limitations, inter alia--

E

(i) sufficient cause must be shown by the applicant why the power should be exercised by the executing court.

(ii) the period of stay granted must be reasonable F

(iii) the stay is granted only in order to enable the applicant to apply to the court which passed the decree or the court having appellate jurisdiction in respect of the decree.

After going through the ruling of the Resident Magistrates' Court dated 19 November 1992 and hearing learned counsel's arguments I am satisfied that the court erred and G the order as made cannot be left to stand.

I gather from the ruling of the Resident Magistrates' Court that the only reason stay of execution was granted is that the applicant had already by that time filed a notice of appeal in the Housing

Appeals Tribunal. With due respect the mere filing of a notice of H appeal cannot amount to sufficient cause for the stay of execution by the executing court. Since the power to order stay is primarily that of the court which passed the decree or the appellate court, a sufficient explanation must be given why the application for stay is sent to the executing court and not to one of the two courts, in this case the I Dar es Salaam Regional Housing Tribunal on the Housing

1996 TLR p129

MKUDE J

Appeals Tribunal. As no such explanation was given by the judgment debtors the A executing court ought to have declined to exercise that power. Let me hasten to add that what is involved here is not a question of ouster of jurisdiction of the Resident Magistrates' Court in rent matters. The point is that as long as the Resident Magistrates' B Court acts as the executing court its powers are limited by the statutory provisions of Order 21 Rule 2(1) of the Civil Procedure Code.

Grounds two and three go together. The requirement that the period of stay of execution granted must be reasonable is tied up with the need to enable the judgment debtor to C apply to the court by which the decree was passed or the court having appellate jurisdiction in respect of the decree. It must be emphasized here that the power given to the executing court under Order 21 Rule 24(1) is not a general power of stay. That power as stated above, is enjoyed only by the court which passed the decree or the D appellate court having jurisdiction in respect of the decree under true provisions of Order 39 Rule 5. Rule 5 of Order 39 provides as follows:

`5(1) An appeal shall not operate as a stay of proceedings under a decree or order appealed from E except so far as the Court may order, nor shall execution of a decree be stayed by reason only of an appeal having been preferred from the decree; but the court may for sufficient cause order stay of execution of such decree.

(2) Where an application is made for stay of execution of an appealable decree before the expiration of the time allowed for appealing therefrom, the court which passed the decree may on sufficient F cause shown order the execution to be stayed.

(3) No order for stay of execution shall be made under subrule (1) or subrule (2) unless the High Court or the court making it is satisfied-

(a) that substantial loss may result to the party applying for stay of execution unless the order is G made;

(b) that the application has been made without unreasonable delay; and

(c) that security has been given by the applicant for the due performance of such decree or order as may ultimately be binding upon him. H

(4) Notwithstanding anything contained in subrule (3) the court may make an ex-parte order for stay of execution pending the hearing of the application.'

I note in the present case that the order granting stay of execution is not made in order to I enable the judgment debtor to apply to the Dar es Salaam Regional Housing Tribunal or the Housing Tribu-

1996 TLR p130

nal. It is an order for stay of executing pending the determination of the appeal. This A order is clearly outside the scope of the order envisaged in Order 21 Rule 24 and it is therefore ultra vires.
For the above reasons I am satisfied that the Resident Magistrates' Court exceeded its jurisdiction when it made the order for stay of execution dated 19 November 1992. The B order is hereby quashed and the decree holder is at liberty to proceed with execution of the decree until such time that a lawful order for stay of execution is issued. The applicant/decree will have his costs for this application and in the court below. C
1996 TLR p130
D
[zRPz]MWALIMU PAUL JOHN MHOZYA v ATTORNEY GENERAL (No. 1) 1996 TLR 130 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Samatta JK
E

CIVIL CASE No. 206 of 1993
25 April 1994 F
Flynote
Constitutional law -- Separation of Powers -- Purpose and function of the doctrine of separation of powers.
Constitutional Law -- Removal or suspension of the President from office -- Whether the President G may be removed or suspended from office by the High Court -- Sections 42(1) and 46A of the Constitution of Tanzania
-Headnote
In this application the applicant sought an interlocutory injunction restraining the President of the United Republic of Tanzania from discharging his functions pending H determination of the main cae in which the applicant sought orders of declaration that: (a)the Constitution of the United Republic had been violated; (b) the President was guilty of having allowed or enabled the said violation; and (c) the continued exercise of presidential powers by President Ali Hassan Mwinyi was unconstitutional and a potential I danger to the well being of the country and its citizens. The Attorney General raised a preliminary objection
1996 TLR p131
against the application on the grounds that the affidavit in support of the application was A fatally defective, and that the Court had no jurisdiction to make the orders sought:
Held:
(i) The concern of the Court is substance rather than form and its function is to get to the bottom of the dispute and determine the real issues in it and; for that B purpose, the Court

may allow steps to be taken to cure any defects in a pleading or an affidavit provided that the other party is not prejudiced thereby;

(ii) The affidavit in this application did not strictly comply with the provisions of the Civil Procedure Code 1966, but the Court could grant leave to the applicant to cure the defects in the affidavit; C

(iii) The principle that the functions of one branch of government should not encroach on the functions of another branch is an important one to ensure that the governing of a state is executed smoothly and peacefully;

(iv) As s 42(3)(d) of the Constitution states that the President shall be in office until D he ceases to hold office `in accordance with the provisions of' the Constitution, and s 46A of the Constitution lays down the procedure by which the legislature may remove or suspend the President from office, any attempt to remove or suspend the President in a manner other than that laid down in the Constitution would not be legal; E

(v) No provision of the Constitution or any other law authorises the High Court to hold that the President can be removed or suspended from office by a body other than that which the Constitution specifically provides for;

(vi) This Court has no jurisdiction to issue the order of injunction sought against the President. F

Case Information

Application for temporary injunction rejected

Cases referred to:

1. Hornal v Neyberger Products Ltd [1956] 3 All ER 970
2. Attorney General of the Gambia v Momodou Jobe [1984] 3 WLR 174 G
3 re: Coles and Ravenshear [1970] 1 KB 1

[zJDz]Judgment

Samatta JK: This is an application for an interlocutory injunction restraining His H Excellency Ali Hassan Mwinyi, the President of the United Republic, from discharging presidential functions pending the determination of Civil Case No 206 of 1993, filed in this Court, in which the applicant seeks, inter alia, the following declarations:

I (1) The Constitution of the United Republic of Tanzania (herein-

A after referred to as the Constitution) was violated by Zanzibar joining an organisation known as Islamic Conference Organisation.

(2) The President is guilty of allowing or enabling that violation to take place and is therefore personally answerable for the violation. B

(3) His Excellency Ali Hassan Mwinyi's continued exercise of presidential powers is unconstitutional as well as a potential danger to the well-being of the United Republic and its citizens.

The application has been strenuously opposed by Mr Salula, Senior State Attorney, on C behalf of the respondent. Although he is a teacher by profession, the applicant, who appeared in person at the hearing, has argued the application, including legal issues, with much confidence.

At the hearing Mr Salula raised a preliminary objection to the application. He based the D objection on three principal grounds. These are:

1. The application is incompetent because the affidavit sworn and filed by the E applicant in support of it is fatally defective in that it does not comply with the provisions of Order 19 Rule 3(1) of the Civil Procedure Code.

2. The application contravenes s 46A of the Constitution in that it attempts to move the court to do an act in respect of which Parliament has provided a F special and entirely different procedure. In other words, this Court does not have jurisdiction to make the order sought by the applicant.

3. The provisions of s 11(2) of the Government Proceedings Act, 1967, and those of Order 37 Rule 2 of Civil Procedure Code as amended by the Govt G Proceedings (Procedure) Rules, 1968 (Govt Notice No 376 of 1968) prohibit the granting of the kind of injunction sought in this application.

In performing my task in the instant application I must make it perfectly clear that I bear H in mind, inter alia, the following principles:

1. A court will not be deterred from a conclusion because of regret at its consequences: Hornal v Neuberger Products Ltd (1) at 978.

I 2. It is wrong for a court of law to be anxious or to appear to be anxious to avoid treading on executive toes.

1996 TLR p133

SAMATTA JK

A 3. A constitution is a living instrument which must be construed in the light of present day conditions. The complexities of our society must be taken into account in interpreting it. A workable constitution is a priceless asset to any country.

4. A constitution should be given a generous and purposive construction:Attorney-General of the Gambia v Momodou Jobe (2). B

Respect must, of course, be paid to the language used in the instrument.

5. The balance of power between the three branches of government, namely, the executive, the legislature and the judiciary, and the relationship of the courts to C the other two branches must be carefully maintained. Any statutory alteration of that balance must be in unmistakable terms. One branch of government should not usurp the powers of another branch.

6. The notion, apparently harboured by some people in this country, that the D President of the United Republic is above the law is subversive of the Constitution and the laws. All Government leaders, including the President, are, like the humblest citizen, bound to comply with the laws of this country. The maxim `The King can do no wrong' has no place in our law even if the word `President' is substituted for the word `King'. Everyone and every institution or E organisation in this country is enjoined to pay respect to the principle of supremacy of the law, see s 26(1) of the Constitution.

7. Flexibility in the application of procedural law is a desirable thing, for it assists to F ensure that at the end of the day justice triumphs. When it comes to the issue of compliance with rules of procedures the instinct for strictness should, where appropriate, be subdued. Substance rather than form should be the courts' primary concern. G

Having stated the above principles, I turn now to consider Mr Salula's preliminary objection. I propose to start with the argument concerning the applicant's affidavit. As will be recalled, it was the learned Senior State Attorney's contention that the affidavit is defective for non-compliance with the provisions of Order 19 Rule 3(1) of the Civil H Procedure Code. Order 19 Rule 3(1) provides:

`3.-(1) Affidavits shall be confined to such facts as the deponent is able of his knowledge to prove, except on interlocutory applications, on which statements of his belief may be admitted: I

Provided that the grounds thereof are stated'.

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It cannot be argued, and the applicant, if I understood him correctly as I believe I did, did A not venture to argue, that the supporting affidavit in this application strictly complied with the above quoted provisions of the Civil Procedure Code. I would not, on that ground alone, however, drive the applicant from the judgment seat in this application. It is the B function of a court of justice to try to get to the bottom of the real dispute and to determine what are the real issues in the matter before it provided, of course, no party can be prejudiced. As already remarked, substance rather than form should be the courts' primary concern. If legal steps can be taken to cure any defects in a pleading or C an affidavit, without substantially prejudicing with the opposite party, a court of justice should grant leave to the party to take these remedial steps, if he so wishes. I would call attention to the elaborated words of Lord Collins MR, in Re Coles and Ravenshear (3)

D `Although a court cannot conduct its business without a code of procedure, the relation of the rules of practice to the work of justice is intended to be that of handmaid rather than mistress; and the court ought not to be so far bound and tied by the rules, which are after all only intended as general rules of procedure, as to be compelled to do what will cause injustice in the particular case'. E

If I will be satisfied that this court has jurisdiction to grant the relief sought by the applicant, I will be prepared to grant leave to him to take remedial stops. I now turn, therefore, to the question whether this court has that jurisdiction. F

Mr Salula's submission on this point was that, as the Constitution contains specific provisions governing how and under what circumstances a person holding the office of the President of the United Republic will cease, temporarily or otherwise, to hold that office, the suspension or removal of such a person from office is not by way of judicial G process. In support of that submission the learned Senior State Attorney cited s 42(2) and (3) of the Constitution as read with s 46A of the same legislation. Countering that argument, the applicant contended, among other things, that s 26(2), 30(3) and 108(2) of the Constitution, whether read together or

separately, empower this court to grant the H temporary injunction sought. Section 42 (2) and (3) of the Constitution reads as follows:

`42-(1) ...

(2) Unless he sooner resigns or dies, a person elected as President shall, subject to subsection (3) I of this section, hold office for a term of five years from the date on which he is elected President.

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A (3) A person elected President shall hold the office of President until:

(a) the day when his successor in office takes the oath of office; or

(b) the date when he dies in office; or

(c) the day of his resignation from that office; or

(d) he ceases to hold the office of President in accordance with the provisions of this constitution.' B

Section 46A provides as follows:

`46A.-(1) Notwithstanding the provisions of article 46 of this Constitution the National Assembly may C pass a resolution to remove the President from office if a motion to impeach the President is moved and passed in accordance with the provisions of this Article.

(2) Subject to the other provisions of this article, no motion to impeach the President shall be moved save only if it is alleged that the President- D

(a) has committed acts which generally violate the Constitution or the law concerning the ethics of public leaders;

(b) has committed acts which contravene the conditions concerning the registration of political parties specified in article 20(2) of this Constitution; or

E (c) has conducted himself in a manner which lowers the esteem of the office of President of the United Republic, and no such motion shall be moved within twenty months from the time when a similar motion was previously moved and rejected by the National Assembly.

(3) The National assembly shall not pass a motion to impeach the President save only if- F

(a) a written notice signed and supported by not less the twenty per cent of all the member of Parliament is submitted to the Speaker thirty days prior to the sitting at which such motion is intended to be moved in the National Assembly, specifying the wrong committed by the G president and proposing that a Special Committee of Inquiry be constituted to inquire into the charges brought against the President.

(b) at any time after the Speaker receives the notice duly signed by the Member of Parliament and satisfies himself that the provisions of the Constitution for the moving of the motion have been H complied with, to vote on the motion to constitute a Special Committee of Inquiry, and if it is supported by not less than two thirds of all the Members of Parliament, the Speaker shall announce the names of the members of the Special Committee of Inquiry I

(4) The Special Committee of Inquiry for the purpose of this article shall consist of the following members, that is to say-

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A (a) the Chief Justice of the United Republic who shall be the Chairman of the Committee;

(b) the Chief Justice of Tanzania Zanzibar; and

(c) seven members appointed by the Speaker in accordance with the Standing Orders of the National Assembly and taking into account the proportional representation amongst the B political parties represented in the National Assembly.

(5) In the event that the National Assembly passes the motion to constitute a Special Committee of Inquiry, the President shall be deemed to be out of office, and the duties and functions of the office of president shall be discharged in accordance with the provisions of article 37(3) of this Constitution C until the Speaker shall inform the President about the resolution of the National Assembly in connection with the charges brought against him.

(6) Within seven days after the Special Committee of Inquiry is constituted, it shall sit, inquire into and analyse the charges preferred against the President, including affording the president the opportunity D to be heard in his defence in accordance with the procedure prescribed by the Standing Orders of the National Assembly.

(7) As soon as possible and in any event within a period of not more than ninety days, the Special Committee of Inquiry shall submit its report to the Speaker.

E (8) After the Speaker receives the report of the Special Committee of Inquiry, the report shall be tabled before the National Assembly in accordance with the procedure prescribed by the Standing Orders of the National Assembly.

(9) After the report of the Special Committee of Inquiry is submitted pursuant to sub-article (8) the F National Assembly shall discuss the report and shall afford the President the opportunity to be heard, and then by the votes of not less than two thirds majority of all the Members of Parliament, the National Assembly shall pass a resolution either that the charges against the President have been proved and that he is unworthy of continuing to hold the office of President, or that the charges have not been proved.

(10) In the event the National Assembly passes a resolution that the charges against the President have been proved and that he is unworthy of continuing to hold the office of President, the Speaker shall inform the President and the Chairman of the Electoral Commission about such resolution of the National Assembly, whereupon the President shall be obliged to resign before the expiry of three days from the day the National Assembly passed the resolution.

(11) In the event the President ceases to hold the office of President by reason of the charges against him being proved he shall not be entitled to receive any payment by way of pension or to receive any benefits or other privileges which he has under the Constitution or any other law enacted by Parliament.'

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The sections of the Constitution which were the main-stay of the applicant's contention A that the Court has the jurisdiction to make an injunction order which has the effect of suspending the President of the United Republic from office read as follows:

`26(2) B

`Every person is entitled, subject to the procedure provided by the law, to institute proceedings for the protection of the Constitution and legality'.

`30(4) C

`Subject to the other provisions of this Constitution, the High Court shall have and may exercise original jurisdiction to hear and determine any matter brought before it in pursuance of this section; and an Act of Parliament may make provision with respect to-

(a) the procedure regulating the institution of proceedings under this section; D

(b) the powers, practice and procedure of the High Court in relation to the hearing of proceedings instituted under this section;

(c) ensuring the more efficient exercise of the powers of the High Court, the protection and enforcement of the basic rights, freedom and duties in accordance with this Constitution.' E

`108(2)

`Where it is not expressly stated in this Constitution or in any other legislation that any specific matter shall be first heard and determined in a certain court, the High Court shall have jurisdiction to hear and determine that matter. In addition, the High Court shall have jurisdiction in respect of any other F matter which, in accordance with legal traditions and conventional practices obtaining is ordinarily to be heard and determined by the High Court; save that, the provisions of this section shall apply subject to the jurisdiction of the Court of Appeal of Tanzania as provided for in this Constitution or in any other legislation'. G

I have given careful and earnest consideration to the competing arguments addressed to me on the issue of jurisdiction and in the end I am satisfied that Mr Salula's argument is sound in law. The principle that the functions of one branch of government should not H encroach on the functions of another branch is a very important principle, one of the principles which ensure that the task of governing a State is executed smoothly and peacefully.

It seems to me to be an incontrovertible proposition of law, having regard to the use of I the words `in accordance with the provisions of this constitution' in s 42(3)(d) of the Constitution, that

removal or suspension from office of the President of the United Republic is the A legislature's exclusive prerogative. Since s 46A of Constitution lays down the procedure to be used in removing or suspending the President, the attempt to remove or suspend him by a procedure other than that would not be legal. If Parliament had intended this B Court to exercise concurrent jurisdiction of dealing with politico-constitutional offences it could easily have said so when enacting s 46A of the Constitution. The omission to provide such a provision in the constitution would appear to strongly suggest that Parliament did not want judicial process to be

used in removing or suspending the C President from office. It is not for this Court to say whether or not that was a wise decision. None of the sections of the Constitution cited by the applicant compels me to hold a different view. The right granted by s 26(2) to institute proceedings for the protection of the Constitution and legality cannot, in my considered opinion, be regarded D as providing an authority to this Court to grant a relief which, according to the Constitution itself, is a remedy available only through a parliamentary procedure. As regards s 30(4), the following can be said. The subsection deals with the subject of limitations upon and the enforcement and protection of basic rights and duties. No issue E concerning basic rights arises in the instant application. With regard to enforcement of duties, it can be said without inaccuracy, I think, that that matter does not authorise the court to hold that the President can be removed or suspended from office in a manner other than that which the Constitution has specifically provided for. As for s 108(2), let F me say without ambiguity that I know of no legal traditions or conventional practices which authorise this Court to try alleged politico-constitutional offences, and the applicant cited none in his argument. It may well be (and I say no more than that, G because the issue is not before me at this stage of the case) that the court has jurisdiction to give a declaratory judgment as to the commission or otherwise of such offences, but I will, I hope, be forgiven for stating the obvious, namely, that a temporary injunction and a declaratory judgment are two different things.

But under the common law does this court not have the jurisdiction to grant the H injunction sought by the applicant? I can, I think, answer that question very briefly. Under the common law (the Crown Proceedings Act, 1948, reaffirmed the rule) no injunction can lie against the Crown: see SA de Smith: Judicial Review Administrative Action, 2nd I ed pp 461--462; Halsbury's Laws of England, 4th ed para 168 p 161. It follows from this position that under that

law this court could not have jurisdiction to issue an injunction against the President. In A any case, any rule of common law granting this court such a jurisdiction would, by necessary implication, have been abolished in this country by the provisions of s 42 and 46A of the Constitution.

While paying due respect to the applicant's gallantry, I have, for the reasons I have given, B reached a clear conclusion that this Court lacks jurisdiction to grant the relief sought by the applicant in this application. This conclusion renders it unnecessary to decide whether, as was strenuously contended by Mr Salula, the provisions of s 11(2) of the Government Proceedings Act, 1967, and these of Order 37 Rule 2 of the Civil Procedure C Code as amended by the Government Proceedings (Procedure) Rules, 1968, stand in the applicant's path in the instant application.

The point taken in limine succeeds and the application for interlocutory injunction is rejected. D

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E

Court High Court of Tanzania - Dar es Salaam
Judge Mkude J
F

MISC CIVIL CAUSE NO 24 OF 1992
13 April, 1994 G
Flynote
Civil Practice and Procedure -- Appeal -- Extension of time to appeal -- Application for.
-Headnote
The Applicant, having lost her case in the Primary Court of Magomeni, failed to appeal its decision within the statutory thirty-day period. Her application to the District Court for H leave to appeal out of time was dismissed. She presently appeals against that decision.
Held:
(i) The fact that the Applicant was busy complaining to the CCM and the Minister for Home Affairs is not sufficient reason for extending the time allowed for I noting an appeal and does not constitute any explanation for failing to appeal in time.
1996 TLR p140
MKUDE J
A (ii) The application is dismissed with costs.
Case Information
Ordered accordingly.
Cases referred to:
1. Stanley Karama Mariki v Chihiyo Kisia w/o Nderingo [1981] TLR 143 B
2. Aero Helicopter (T) Ltd v F.N. Jansen [1990] TLR 142
Lipiki, for the Respondent.
[zJDz]Judgment
Mkude J: C
This is an application for extension of time to appeal against the order of the District Court of Knondoni refusing leave to appeal out of time. The applicant had lost the case in the Primary Court of Magomeni and failed to appeal against the decision of the Primary Court within the statutory thirty days. She applied for leave to appeal out of time but the D district court dismissed her application against the order of the district court and so she is now seeking leave to appeal out of time. In the course of her submissions the applicant was at pains to explain why she was late in appealing to the district court against the decision of the district court which refused her leave to appeal out of time, E even after prompting from the court.
In reply, Mr Lipiki, learned counsel for the respondent, raised a preliminary objection to the effect that the application is incompetent as it has been made under the wrong provision. The chamber summons shows that the application is made under s 95 of the F Civil Procedure Code, while the Civil Procedure Code does not apply to primary courts. Mr Lipiki submitted that as the matter originated in the primary court the application should have been made under Rule 3 of the Civil Procedure (Appeals in Proceedings originating in Primary Courts) Rules 1964. He

contended further that Rule 3 G contains mandatory requirements which an applicant for extension of time must comply with or else the application will be rejected as incompetent. He cited the case of Stanley Karama Mariki v Chihiyo Kisia w/o Nderingo (1) as authority for this.
Mr Lipiki further contended that even if the court should hold the application to be H competent the applicant has given no good reason for the delay. He submitted that, as shown in the counter-affidavit, the applicant sought justice outside the court while the case was pending in court and that is when she wasted time. Mr Lipiki pointed out that I the applicant had been to the Minister for Home Affairs and CCM at a time when she ought to have been pursuing
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MKUDE J
her appeal in the courts. She had even been to the Mfanyakazi Newspaper complaining A instead of coming to court and pursue her appeal. Mr Lipiki concluded by urging the court to dismiss the application with costs.
I respectfully agree with Mr Lipiki, learned counsel for the respondent, that this application is incompetent. Section 95 of the Civil Procedure Code cited in the chamber B summons has no application in view of the provisions of s 2 of the Civil Procedure Code which provides as follows:

`2. Subject to the express provisions of any written law, the provisions of the Code shall apply to all C proceedings in the High Court of the United Republic, Courts of resident magistrates and district courts.'

As pointed out by Mr Lipiki provision is made under Rule 3 of the Civil Procedure D (Appeals in Proceedings originating in Primary Courts) Rules, 1964. It follows that there is no occasion for invoking the inherent powers of the court under Section 95 of the Civil Procedure Code even if the Code were applicable. See Aero Helicopter (T) Ltd v F N Jansen (2) in which it was held that where there is a law making provision for exercise of E power by a court then inherent powers of the court cannot be invoked.
The applicant has not given any explanation for failing to appeal against the order of the district court in time. The fact that she was busy complaining to CCM and the Minister for Home Affairs is not sufficient reason for extending time. F
For the above reasons this application fails and I dismiss it with costs.
1996 TLR p142
A
[zRPz]MOHAMED JAWAD MROUCH v MINISTER FOR HOME AFFAIRS 1996 TLR 142 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Mackanja J
B

MISC CIVIL CAUSE NO 157 OF 1993
23 August, 1984
Flynote

Immigration Law - Residence permit - Cancellation thereof by the Director of the Immigration C Services and confirmed by the Minister for Home Affairs - Whether grounds existed for such cancellation.

Principles of Natural Justice - Individual's right to be heard by judicial and quasi-judicial bodies - D Whether such function was exercised by the Director and/or the Minister - Whether an individual has the legitimate expectation of remaining in the country until expiry of his residence permit - Whether such expectation entitles the individual to make representations to the authorities - Section 15 of the Immigration Act. E

Administrative Law - Duty to give reasons - When such duty arises.

-Headnote

The Applicant arrived in Tanzania during the course of 1987 and was subsequently granted a `Residence Permit Class 'A' No.004307', issued on 14 September 1990. Renewed on 16 September 1993, the permit was to remain current until 12 September F 1994. In the interim, however, it was cancelled by the Director of Immigration Services and duly confirmed by the Minister for Home Affairs, on 2 December 1993.

In a letter to the Applicant, the Director advanced that `the power conferred upon me under s.15(2) of the Immigration Act No.8 of 1972' constituted the reason for the cancellation of the Applicant's permit. G

The Applicant's counsel contended that the unstated reason for the cancellation of the permit was due to certain criminal charges pending against the Applicant, and that the effect of such cancellation was that the Applicant, as persona non grata in the Republic, could not clear his name by defending the charges. H

The Applicant accordingly sought the invalidation of the cancellation of the permit on account of the alleged bias of the Minister and also on the basis that the Applicant was `punished' unheard.

Held:

(i) The Applicant learnt of the cancellation of his permit from a third party, since he I was himself out of the country at the time of cancellation and the letter of cancellation was served upon his son.

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(ii) The Applicant was charged under laws and by authorities independent of the A powers of the Minister.

(iii) A foreign alien (sic) has no right to enter the Republic except by leave; and should leave be granted, he cannot overstay the permissible period by a single day.

(iv) Once a permit is granted to an immigrant, he has the right to remain in the B Republic until such permit expires. If, however, the permit should be revoked during its currency, the immigration authorities have a duty to give reasons for such revocation and to afford the affected person the opportunity of being heard, prior to a final decision being taken.

(v) Discretionary powers must be exercised fairly, and this requires adherence to C the rules of natural justice which include the right to be heard. There is nothing in Section 15(1) of the Immigration Act which ousts that right.

(vi) Although the Applicant had a legitimate expectation of remaining in the country until the expiry of his permit, that expectation could have been justifiably D extinguished if, and only if, he had been given an opportunity of making representations to the authorities.

(vii) In the result, the following orders of certiorari are made:

the Director's decision, cancelling the Applicant's permit is quashed; the Minister's decision, confirming the Director's decision of cancellation, is E quashed; and the Minister's order of deportation of the Applicant is quashed.

(xi) A mandamus is issued, ordering the Director to restore `Residence Permit Class `A' No.0043607' to the Applicant forthwith.

(xii) The Applicant is entitled to his costs.

Case Information

Ordered accordingly. F

Cases referred to:

1. R v Brixton Prisoner Governor, Ex parte Soblem [1962] 3 All ER 641
2. Schmidt v Secretary of State for Home Affairs [1969] 1 All ER 904
3. Ridge v Baldwin [1963] 2 All 66; [1964] AC 40 G

El-Maamry, for the applicant.

Mallaba for the respondent.

[zJDz]Judgment

Mackanja J: H

It is not disputed at all that the applicant came to Tanzania sometime in 1987 and subsequently established some business here in Dar es Salaam. In order to regularise his stay in this country he applied for, and was granted, residence permit class `A'. According to Hassen Rajabu Maiga, a Senior Immigration Officer who swore the counter I affidavit and who was summoned to be cross-examined at the instance of the applicant, the applicant was, for the first time,

issued with Residence Permit Class `A' No 004307 on 14 September 1990. This permit A was renewed on 16 September 1993; it was to remain current until the 12 September 1994. This was not to be because the residence permit was cancelled on 2 December 1993. According to law the cancellation was made by the Director of the Immigration B Services, an exercise which was confirmed by the Minister responsible for Home Affairs. The Minister's confirmation is contained in a letter with Ref No HAS 152/113/03/F/50 dated 2 December 1993. That letter is addressed to the applicant; the operative part reads: C

`I, Augustine Lyatonga Mrema (MP), Deputy Prime Minister and Minister for Home Affairs, do hereby confirm under s 15(2) of the Immigration Act 1972 that Residence Permit Class `A' No 0043607, issued to you is hereby cancelled and that you are required to leave the country by the 2nd December, 1993. D

I, also hereby, order under section 23 of the Immigration Act No 8 of 1972 that you, Mr Mohamed Jawad Mroeh (sic) are prohibited from entering and staying in Tanzania ...'.

The reason which was advanced for the cancellation of the residence permit is E contained in the letter which communicated that decision to the applicant. It was written on 2 December 1993 by the office of the Director of Immigration Services. The operative part reads:

`Please take note that by the power conferred upon me under s 15(2) of the Immigration Act No 8 of F 1972, I hereby cancel, in the public interest, your residence permit class `A' No 0043607 issued on 14/9/90 and renewed on 16/9/93 valid until 12/9/94.

Your stay in the United Republic of Tanzania shall, therefore, be unlawful under section 6(f) of the Immigration Act No 8 of 1972 ...' G

He was ordered to surrender his residence permit and to leave the country not later than the day the letter was written. He was advised to appoint an agent of his own choice to take care of his movable and immovable property he might have in the country during his H absence. Both letters have been annexed to the affidavit which supports the application.

Mr El-Maamry, learned advocate for the applicant, maintains that the action which was taken against his client is unfair, because for all the years that he lived in this country he led a clean faultless life. In spite of all this the Minister for Home Affairs did, on 22 I October 1993 call a press conference at which he accused the applicant of having

illegally exported US $401,208 to foreign banks. That he ordered the arrest of the A applicant who was consequently arrested on 23 October 1993. On 25 October 1993, charged with two counts of forgery and uttering a false document concerning some US $6,000 in Criminal Case No 1273/93. That although the Minister has accused the applicant of wrong-doing involving a larger amount of money, the criminal charges B reflected a smaller amount. That when this case came up for mention in court on 23 November 1993 the applicant who was admitted to bail, applied for leave to travel to Spain for treatment to his eye. The prosecution is alleged to have raised no objection to this overseas trip and the court of the Resident Magistrate, Kisutu duly granted him leave C of absence. The applicant's son, Ali Mohamed Jawad Mrouch, was bound over to produce his father before the court on 22 December 1993, a date on which hearing of the case was fixed. Ali Mohamed Jawad Mrouch has sworn an affidavit in which he testifies to the above matters. From the forgoing facts it is now clear that the applicant's D residence permit was cancelled while he was out of the country-and while criminal matters were pending in court against him. The letter which communicated the cancellation of the residence permit was served on his son. So he came to know this matter through a third person. E

Mr El-Maamry contends that both the cancellation of the resident permit and the order which declared the applicant a probited immigrant were unlawful because they were made and confirmed by the same authority who had initiated criminal proceedings F against his client. The effect of the order which declared the applicant persona non grata was, of course, to disable the applicant from coming back to stand trial on criminal charges which were preffered against him in Criminal Case No 1273/93 of the Kisutu Court of Resident Magistrate. In the view of Mr El-Maamry these orders were unlawful G because they were intended to prevent the applicant

from demonstrating his innocence. He based his submissions on the judgment in R v Brixton Prison Governor, Ex parte Soblem (1) at 907. For if he was guilty of the charges which faced him the law would have taken its full natural course. Mr El-Maamry contends that his client was not allowed H to clear his name although there was no evidence against him. He cited as an example the fact that although the Minister had accused him of offences involving a larger sum of US $401,208 the criminal charges against him involved only US $6,000.

Another point which the applicant persues relates to his right to be heard before he is I punished.

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MACKANJA J

Mr El-Maamry submits that the applicant was denied his basic right to be heard before A he was condemned. That the applicant has been stigmatized and that the only remedy is to quash the orders because they were taken illegally and injudiciously and that the Republic failed to establish the public interest which they claim was the basis for B expelling the applicant from the country. Mr El-Maamry contends further that the Minister has made himself a judge in his own cause by ordering the arrest, the prosecution and confirming the cancellation of the applicant's residence permit. This, he says, is a clear manifestation of a denial of natural justice. Mr El-Maamry has referred to several English C decisions which to a large extent are irrelevant to the matters which are before me. Suffice it to say at this point that he contends that the Minister, on account of accusations which are made by Mr El-Maamry, should have disqualified himself in a matter in which he had a personal interest. Mr El-Maamry also questions the powers of D the Director of Public Prosecutions when he entered nolle prosequi in the case which faced the applicant. He invites this Court to quash that decision so that the applicant may be allowed to demonstrate his innocence.

So, from the foregoing submissions the applicant is raising the following important E issues:

1. The criminal proceedings which were instituted against him should be proceeded with to their conclusion so that he cleans his name, so to speak. F

2. That the cancellation of the residence permit and the deportation order are invalidated on account of the fact that the Minister's decision is tainted with bias.

3. The applicant was punished unheard. G

Mr Mallaba, learned State Attorney who represents the Republic, has invited this Court to dismiss the application. He has submitted that the existence of a criminal case against the applicant has nothing to do with the cancellation of his residence permit and H his subsequently being declared a prohibited immigrant. It is Mr Mallaba's contention that the two, that is the institution of the criminal case and the applicant's immigration status, have nothing in common. He argues that the criminal prosecution is a police matter and the other is an Immigration Department issue. And that there is no evidence I that both matters were instituted in tandem by the Minister.

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MACKANJA J

Be that as it may have been, the applicant has not led evidence which does on a A balance of probability show that the criminal charges were instituted at the instance of, or under pressure from, the Minister. The only evidence there is the affidavit of Ali Mohamed Jawad Mrouch, the applicant's son. He deposes on nothing which touches on B these allegations. What remains are statements from the Bar and press reports. Statements made from the Bar or press reports cannot be substituted for probative evidence. I would therefore say that the applicant was prosecuted, and his charges later discontinued, under laws and by authorities which are independent of the powers of Minister for Home Affairs. In these circumstances, I would agree with Mr Mallaba that the C existence of the criminal charges or the discontinuation of those criminal charges cannot be a bar for the appropriate authority to discharge its duty under the Immigration Act. If the applicant feels that his name has been tarnished his remedy cannot be contained in proceedings of this nature. These observations answer the first and second D issues which I have framed.

I now turn to the third issue: was the applicant denied natural justice?

The Republic concedes that the right to be heard is one of the principles of natural E justice which all the judicial and quasi-judicial bodies are required to observe. Mr Mallaba contends, however, that the Director of Immigration Services and the Minister did not exercise a quasi-judicial function when the former cancelled the applicant's residence and when the Minister confirmed that cancellation. Mr Mallaba stated that even if the F Director and the Minister were quasi-judicial bodies, s 15(1) of the Immigration Act waves the right to be heard. That section provides:

`Section 15(1) Every residence permit issued under this Act shall be subject to the condition that if at G any time the holder thereof is notified by the Principal Immigration Officer that the permit has been cancelled in accordance with ss (2) the holder shall, within such time that the Principal Immigration Officer may specify, leave Tanzania.' H

Subsection (2) of s 15 empowers the Principal Immigration Officer (now the Director) to cancel a residence permit provided it is confirmed by the Minister for Home Affairs. All that is required of the Director, according to Mr Mallaba, is to notify the foreign alien of I the changed circumstance in his immigration status, and if the Minister is satisfied, he will confirm the cancellation. The language

used in this legislation uses the word shall, which implies that it is mandatory. A

On the fact of it, it appears that the foreign alien whose permit is cancelled shall leave Tanzania at the time he is notified that his permit has been cancelled. In Mr Mallaba's B interpretation of s 15(1) an alien's right of being heard is extinguished by that statute. He finds support for this contention in an English decision in Schmidt v Secretary of State for Home Affairs (2) in which the same issue was discussed. Lord Denning was of this view, at 908 and 909: C

`... I quite agree, of course, that where a Police Officer has power to deprive a person of his liberty or his property, the general principle is that it is not to be done without his being given an opportunity of being heard and of making representations on his own behalf. But in

case of aliens, it is rather D different; for they have no right to be here except by licence of the Crown. And it has been held that the Home Secretary is not bound to hear representations on their behalf, even in the case of a deportation order, though, in practice he usually does so...'.

As regards an alien who has no valid residence permit I would also agree with Lord E Denning that a foreign alien has no right to enter this country except by leave; and if he is given leave to be in the country for a limited period, he has no right to overstay a single day. However, as Lord Denning says in Schmidt v Secretary of State (supra) at 909 in respect of those aliens who have residence permits: F

`... If the permit is revoked before the time limits expires, he ought, I think, to be given an opportunity of making representations for he would have a legitimate expectation of being allowed to stay for the permitted time. Except in such a case a foreign alien has no right-and I would add, no legitimate expectation-of being allowed ...'. G

From the above exposition of the law, with which I fully agree, a foreign alien has no right to stay in this country without a permit. But once a permit has been given to him then he H is entitled to stay until it expires. If it is revoked mid-term, then the immigration authorities have a duty to given him the reasons and an opportunity of being heard before the final decision is taken.

Now, Mr Mallaba contends that the functions of the Director and the Minister are administrative and purely discretionary; hence the rules of natural justice do not apply. I Well, I need not overemphasize the point that a discretion has to be exercised fairly; it

cannot be exercised fairly if the decision is arbitrary. In fact, decretionery powers cannot A be exercised fairly without adhering to rules of natural justice, including the right to be heard. There is nothing in s 15(1) of the Immigration Act which ousts that right of being heard in an appropriate case of a person whose lawful story has been abruptly discontinued before the expiry of his residence permit. The English case of Ridge v B Baldwin (3) is sufficient persuasive authority for the view that the distinction between administrative and judicial powers is largely not a valid one. Lord Denning says at page 909 in Schmidt v Secretary of State (supra) that: C

`... Some of the judgments in those cases were based on the fact that the Home Secretary was exercising an administrative power and not a judicial act.

But the distinction is no longer valid ... an administrative body may, in a proper case, be bound to give D a person who is affected by their decision an opportunity of making representations. It all depends on whether he has some right or interest, or, I would add, some legitimate expectation, of which it would not be fair to deprive him without hearing what he has to say....'

I have already held that the applicant has a legitimate expectation of staying in the E country until the expiry of his residence permit. That expectation could be extinguished justifiably if, and only if, he had first been given an opportunity to make representations to the authorities. It is after hearing him that the authorities could have justly decided, after F considering those representations, that it was in the public interest to revoke the permit. In the circumstances the

application succeeds.

Upon the foregoing considerations I hereby issue an order of certiorari quashing the order of the Director of the Department of Immigration Services which cancelled the G applicant's Residence Permit Class `A' and an order of certiorari quashing the decision of the Minister for Home Affairs which confirmed the aforementioned cancellation. Persuant to the above order, I further issue an order of certiorari quashing the Minister's order deporting the applicant from this country. Finally I issue an order of mandamus H against the Director of Immigration Services ordering her to restore Residence Permit Class `A', No 0043607, to the applicant forthwith.
The applicant shall have his costs. I
1996 TLR p150
A
[zRPz]FABIAN MUNRAHA v. RUKAYA MUNRAHA 1996 TLR 150 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Mwaikasu J

B
CIVIL APPEAL NO 12 OF 1990
30 August, 1994
Flynote
Civl Practice and Procedure -- Proof of case ex-parte -- Whether competent in proceedings for the dissolution of marriage. C
Principles of Natural Justice -- Right to be heard -- Whether proof ex-parte of dissolution of marriage constitutes a violation of such right.
-Headnote
On 28 December 1989, the Respondent in this appeal was granted leave by the court below to prove her petition for the dissolution of marriage ex-parte on 29 January 1990. D The Respondent duly appeared on the latter date, proved the dissolution of the marriage and obtained an order from the court to that effect.
The Appellant appeals against that order on the basis that no notice had been sent to him informing him of the proceedings to take place on 28 December 1989, and that E accordingly he could not have known of the petition date of 29 Januuary 1990.
Held:

(i) As a result of the ex-parte proof adduced on 29 January 1990, the Appellant was effectively and wrongfully denied the right to be heard and accordingly clearly condemned unheard. F

(ii) Such violation of the Appellant's right to be heard constituted a contravention of one of the basic principles of natural justice.

(iii) The appeal is allowed, the decision of the lower court is quashed, and the case is ordered remitted to the lower court for retrial.

Case Information

Ordered accordingly. G

[zJDz]Judgment

Mwaikasu, J:

This is an appeal by one Fabian Munraha against the judgment of the lower court which on 5 March 1990 dissolved the appellant's marriage to one Rukaya Munraha. H

The judgment of the lower court has been impugned on the grounds, inter alia that the appellant was condemned unheard for no fault of his. In that, as shall presently hereinafter be demonstrated, I think he is quite right. I

The saga appears to have started on 30 October 1989. As the typed record of the lower court shows, on that day only the appel-

1996 TLR p151

MWAIKASU J

lant, then respondent, appeared. The case was then adjourned for mention on 9 A November 1989 when a hearing date was to be fixed. When the case was called for mention on 9 November 1989, the appellant did not appear but counsel for the petitioner appeared. On that day a hearing date was fixed and that came to be 28 December 1989. When the case came up for hearing on 28 December 1989 in absence of the appellant B then respondent, it was submitted by Mr Kashumbugu, learned counsel for the petitioner that since the appellant was present on 30 October 1989 and was aware of the hearing date, then the respondent should be allowed to proceed to prove her petition C ex-parte. That was then accordingly granted by the lower court. The ex-parte proof was then fixed for 29 January 1990.

At this point it is to be pointed out that the lower court erred in granting such leave for such ex-parte proof. For it is evident that though the appellant was present on 30 D October 1989 the day when the respondent did not appear and the case had to be adjourned to 9 November 1989 for mention for the purposes of fixing a hearing date, in such mention date when the hearing was fixed for 28 December 1989 the appellant did not appear. Yet no notice was ever sent to him to notify him of such hearing date as E fixed on 9 November 1989 when he was absent. There is no evidence to show that the appellant was ever made aware in any way of the hearing date on 28 December 1989. And when he was present on 30 October 1989 such hearing date was not at all suggested, that is why the case had to be adjourned to 9 November 1989 to consider a F suitable hearing date.

Thus the respondent was, on 28 December 1989 granted leave to prove the case ex-parte and did proceed to prove the same on 29 January 1990 without the knowledge of the appellant, and on the basis of such ex-parte proof the marriage was dissolved, the G appellant was clearly thereby condemned unheard. The appellant was therefore effectively and wrongfully denied the right to be heard, thus contravening one of the basic principles of natural justice.

Consequently, on that ground alone, and without going further to consider other grounds H raised, I allow this appeal, quash the decision of the lower court with an order that the case be

remitted back to the lower court for retrial, hoping that this time the lower court will ensure that both parties are afforded equal opportunity to be heard before final determination of the case. Order accordingly. I

1996 TLR p152

A

[zRPz]EBERHARD SAPRAPASEN v NATIONAL BANK OF COMMERCE 1996 TLR 152 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Mackanja J

B

MISC CIVIL CASE NO 76 OF 1993

Flynote

Debtor and Creditor - Mortgage of property as security for a loan - Intended sale of the property by C mortgagee - Injunction sought restraining the intended sale - Whether grounds exist for such inunction.

-Headnote

The Applicant is a shareholder and a director of a company known as Union Metal D Works Ltd (`the company'). The company obtained a loan from the Respondent on 15 June 1992 in the amount of Shs. 57,701,602.00. As security for that loan, the Applicant mortgaged certain property in favour of the Respondent.

Acting on behalf of the company, the Applicant went to Europe to purchase certain E machinery for the company's business. In order to facilitate the purchase, the Respondent opened a letter of credit on behalf of the company in favour of FIDE, a Swedish firm and seller of the machinery. Notwithstanding FIDE's failure to comply with the terms of the letter of credit, the Respondent nevertheless and with full knowledge of such failure paid over to FIDE the amount indicated in the letter of credit. F

The Applicant contended that the company had not repaid the loan on account of the Respondent having paid contrary to the letter of credit and having thus accepted defective machinery.

The Applicant accordingly sought an injunction restraining the Respondent from exercising its rights in respect of the mortgaged property and selling it. G

The Court noted that, although duly served, the Respondent did not appear, and thus the application falls to be determined with reference solely to the Applicant's affidavit.

Held:

H (i) The Applicant has given sufficient cause as to why the injunction should issue.

(ii) The application succeeds.

Case Information

Ordered accordingly.

Lebba, for the Applicant. I

No appearance for the Respondent.

1996 TLR p153
[zJDz]Judgment
Mackanja J: A
The applicant has deponed in the affidavit which supports the application that he is a shareholder and a director of a limited liability company known as Union Metal Works Ltd. The aforesaid company secured from the respondent company a loan which together with interest, was amounting to Shs 57,701,602.00/= as at 15 June 1992. The B applicant mortgaged as security for that loan his real property known as `Plot No 8, Block `A' Service Trade Sinza in Dar Es Salaam' for which he holds a letter of offer No D/KN/A/22620/1 dated 1 July 1992. The applicant states in his affidavit that M/S Union Metal Works Ltd have failed to repay the loan and the respondent wants to exercise his C rights under the mortgage by selling the security for the loan.
The purpose of this application is to seek an injunction which will restrain the respondent, its agents and/or servants from carrying out the proposed sale. The D applicant swears in his affidavit that the sale, which amounts to foreclosing, offends the law of this country. Mr Lebba, advocating for the applicant, did not address the court on the legal issues his client claims are pertinent to this application. As well as that, the applicant's affidavit is quiet on any possible course of action once, if at all, the reliefs he E seeks are granted. The situation has been compounded by the apparent lack of interest on the part of the respondent who, although duly served, did not contest the application because it failed to appear. So there is only the evidence of the applicant upon which this application will be determined. F
There is evidence from the applicant's affidavit to the effect that the funds which were advanced to his company were provided by the Swedish International Development Authority (SIDA) to developing entrepreneurs in the country. Having secured the loan, and with the full knowledge of the respondent and the Swedish Co-ordinator of the fund G the applicant left for Europe in search of appropriate machinery. He swears that while in Frankfurt, Germany, the Swedish Co-ordinator lured him to sellers in Sweden.

According to the applicant, the Swedish Co-ordinator with the full knowledge of the respondent, advised him to procure the machinery from Sweden allegedly because it H would be easier to pay for it. It is alleged further that the respondent facilitated the purchase of the machinery from Sweden by opening a letter of credit No LCFB 233/88 for Swedish Kroner (SEK) 955,000 then equivalent to Tanzania Shs 16,114,446.00/= in I favour of FIDE, a Swedish firm. It is
1996 TLR p154
the further contention of the applicant that the respondents were agents of Union Metal A Works in all the above financial transactions. That, although the sellers breached the conditions contained in the letter of credit, the respondent, with full knowledge of that breach, went ahead to pay the sellers.
Ultimately the machinery arrived and the entire consignment was found defective and B completely unfit. The applicant lodged a protest to the respondent in respect of the defective

machinery. The applicant now claims that the loan has not been repaid due to the fact that the respondent failed to adhere to the conditions in the letter of credit and consequently paid for defective machines. Hence this application. C

I am satisfied, from the above evidence, that the applicant has given sufficient cause why the injunction should issue. In the result the application is allowed and the reliefs sought are granted. D

1996 TLR p154

E

[zRPz]REPUBLIC v NICOLAUS MAMUU 1996 TLR 154 (HC)

Court High Court of Tanzania - Moshi

Judge Mroso J

F

CRIMINAL REVISION NO 15 OF 1994

18 January, 1995

Flynote

Criminal Practice and Procedure - Charge of murder - How withdrawn - Sections 91(1) and G 98(a) of the Criminal Procedure Act, 1985.

-Headnote

While police investigations were still under way, and after he had been charged with H murder, the Accused escaped from custody. About a year later, and on application by the public prosecutor, the District Court of Rombo withdrew the charge against the Accused in terms of Section 98(a) of the Criminal Procedure Act.

On revision to this Court, the Court restored the charge of murder against the Accused. I

Held:

(i) Section 98 speaks of the withdrawal of charges in respect of `any trial

1996 TLR p155

A before a subordinate court'; and given that the crime of murder is triable only before the High Court, the trial on the charge could only have been properly brought before the High Court and thus Section 98 could not have been used to withdraw the charge.

(ii) The withdrawal of the charge in question should have been brought in terms of Section 91(1). B

(iii) The order of the District Court is quashed and set aside, and the charge of murder against the Accused is restored.

Case Information

Ordered accordingly.

[zJDz]Judgment

Mroso JA: C

The accused Nicolaus s/o Mamuu was charged with murder contrary to s 196 of the Penal Code. While police investigations were still in progress he escaped from custody. About a year later the

public prosecutor informed the District Court of Rombo before whom the accused had been charged that the police though it was futile to continue D looking for the accused and, therefore, applied to withdraw the charge of murder against the accused under s 98(a) of the Criminal Procedure Act, 1985. That provision is in the following words-- E

`98. In any trial before a subordinate court any public prosecutor may, with the consent of the court or on the instructions of the Director of Public Prosecutions, at any time before judgment is pronounced, withdraw from the prosecution of any person either generally or in respect of one or more of the offences with which such person is charged; and upon such withdrawal-- F

(a) if it is made before the accused is called upon to make his defence, he shall be discharged, but such discharged of in accused person shall not operate as a bar to subsequent proceedings against him on account of the same facts;

(b) ...' (not relevant). (emphasis provided). G

It will be noted that s 98 speaks of `any trial before a subordinate court', which means that it is applicable only in a case which is triable by a subordinate court. It is not resorted to where the offence is not triable by a court other than a subordinate court. H

According to the First Schedule to the Criminal Procedure Act, 1985 the offence of murder (wrongly shown as s 197 instead of the correct s 196 of the Penal Code) is triable only by the High Court (or by a subordinate court with extended jurisdiction under s 173 of the Criminal Procedure Act, 1985). I

The District Court of Rombo was neither a High Court nor a

1996 TLR p155

subordinate Court with extended jurisdiction and, therefore, would not have jurisdiction to A try a murder charge. It follows that since a murder charge is not normally triable by a subordinate court, s 98 of the Criminal Procedure Act, 1985 would not be employed to withdraw it from the court. The appropriate legal provision would be s 91(1) of the B Criminal Procedure Act, 1985 under which the Director of Public Prosecutions can enter a nolle prosequi to terminate any case before a court, at any time before judgment or verdict is given.

The termination of the murder charge against the accused under s 98(a) of the Criminal C Procedure Act, 1985 was incompetent and, therefore, the order of the District Court discharging the accused is quashed and set aside. The charge of murder against the accused is restored. If the D.P.P. is minded to terminate the charge, that would be done according to law. D

1996 TLR p156

E

[zRPz]ATTORNEY-GENERAL AND TWO OTHERS v AMAN WALID KABOUROU 1996 TLR 156 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Nyalali CJ, Kisanga JJA and Mfalila JJA

F

CIVIL APPEALS NOS 32 AND 42 OF 1994
28 December, 1994, and 31 January, 1995 G
Flynote
Constitutional Law - Elections - Official proclamation (tamko rasmi) by Electoral Commission - Whether the courts can inquire into the validity thereof - Article 74(12) of the Constitution.
Administrative Law - Elections - Electoral Commission's power to issue regulations - extent of H such power - Article 74(6)(b) of the Constitution and Section 124(1) of the Elections Act, 1985.
Electoral Law - Nullification of elections - Grounds for - What constitutes such grounds - Section 108 of the Elections Act, 1985.
Electoral Law - Elections - Complaints pursuant thereto - whether a `corrupt practice' or `corrupt I motive' constitutes a tenable com-
1996 TLR p157
plaint - What amounts to a `corrupt practice' or `corrupt motive' - Elections Act, 1985, and A Prevention of Corruption Act, 1972, compared.
Electoral Law - Counting of ballots - Dissatisfaction with the count - course of action of dissatisfied party - Section 78 of the Elections Act. B
Civil Practice and Procedure - Locus standi in judicio - Whether Radio Tanzania Dar es Salaam is a legal person capable of being sued - Whether it was validly joined as a party.
Defamation - Election campaigns - What constitutes defamation in an electoral context - C Whether an election campaign can constitute an excuse for defamation.
Nationality - Citizenship - How established - Citizenship Act, 1961, Cap. 512 read with the British Nationality Act, 1948.
-Headnote
The High Court at Tabora allowed a petition by the Respondent filed under Section 108 D of the Elections Act, 1985, as amended, and duly declared the results of a certain parliamentary by-election null and void. The Third Appellant, Azim Suleman Premji, had as a result of the by-election been declared the new M.P. for Kigoma Urban Constituency. E
The present appeal is a consolidation of two separate appeals begun, on the one hand, by the aggrieved Third Appellant, and on the other hand, by the First and Second Appellants jointly. The First Appellant was joined as a respondent in the High Court petition as a necessary party, pursuant to rule 4(1) of the Elections (Election Petitions) Rules, 1971. The Second Appellant, Radio Tanzania Dar es Salaam, was sued in the F petition because the Respondent alleged that its broadcasts had affected the results of the by-election.
On 28 December 1994, this Court dismissed the appeal with costs, including those incurred in the Court below. The Court's reasons were supplied on 31 January, 1995. G
The facts appear from the reasons for judgment.
Held:
(i) The High Court of this country has a supervisory jurisdiction to inquire into the legality of anything done or made by a public authority, and this jurisdiction includes the power

to inquire into the legality of an official proclamation by the H Electoral Commission (tamko rasmi).

(ii) The Electoral Commission is empowered in terms of the Elections Act to make only such regulations as are in furtherance of specific provisions of the Act or in furtherance of the purpose of the whole Act. This power of the Commission is, I however, to be exercised subject to the underlying constitutional principle which requires democratic

A elections to be free and fair, and this principle should be read into the Elections Act.

(iii) Although, in casu, the tamko rasmi was issued in the furtherance of free and fair elections, it is invalid due to the Vice-Chairman of the Electoral Commission having signed it instead of the Chairman, as is required by Section 3 of the Act. B

(iv) There are grounds other than those stated in Section 108 of the Elections Act for the nullification of election results. Such other grounds include `anything which renders the elections unfree (sic) or unfair', as well as any law which seeks to protect `unfree (sic)' or unfair elections, since such would be unconstitutional.

C (v) The mere removal of illegal and corrupt practices from Section 108 does not have the effect of rendering such practices permissible in terms of the Elections Act, 1985. Instead, the effect of such removal is that such practices are no longer per se sufficient grounds for the nullification of election results. Such practices are still relevant, however, in determing whether elections were conducted freely and fairly. D

(vi) A `corrupt practice' for the purposes of the Elections Act is not necessarily the same as corruption under the Prevention of Corruption Act, 1972. A `corrupt practice' under the Elections Act may be construed either as being a failure to abstain from committing the offence of bribery, as defined in Section 97 of the E Elections Act, or as being a misconduct which renders the election unfair.

(vii) In casu, the maintenance work of the Kigoma-Ujiji road during the election campaign constituted non-compliance with the prohibition against electoral bribery, and was executed with the corrupt motive of influencing voters to vote F for the CCM candidate and accordingly affected the results of the election.

(viii) In casu, further, the political campaigning by Mrema and Kiula (both M.P.'s) prior to the permissible campaigning period having begun, was illegal and must have affected the results of the by-election.

(ix) Radio Tanzania Dar es Salaam was purely a government department, at the G material time, with no separate legal personality enabling it to be joined as a party to the petition separately from the Attorney General (First Appellant), who represents the government.

(x) CCM was given more air-time on Radio Tanzania Dar es Salaam than were given other political parties, and its broadcasts generally were biased in favour H of the CCM candidate, such that it must have influenced the by-election results in favour of the CCM candidate.

(xi) When a candidate in an election or a counting agent expresses dissatisfaction following the counting process, Section 78 of the Act grants a recount to the dissatisfied individual as his only course of action.

I (xii) The public statements made by various officials of the CCM in respect of opposition parties generally, and the Respondent's party

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A specifically, were clearly defamatory, and such statements cannot be justified during electioneering since elections are required to be conducted not only with due observance of the Constitution and the Elections Act, but also of the general law of the land which forbids defamation.

(xiii) In deciding matters of citizenship, the law on the subject is contained in the B Citizenship Act, 1961 Cap. 512, and the British Nationality Act, 1948. The three factors which determine citizenship by birth are firstly, being born in Tanganyika by 8 December 1961; secondly, being a citizen of the U.K. and Colonies or being a British protected person on 8 December 1961; and finally, having at least one parent born in Tanganyika. C

(xiv) According to the law of this country, the Third Appellant at birth acquired the nationality of both his parents, which nationality continued until he was required to choose between his original Indian citizenship and Tanzanian citizenship. D The Third Appellant accordingly lost any Tanzanian citizenship since he failed to renounce his Indian citizenship.

(xv) The appeal is dismissed with costs, including those incurred in the court below.

Case Information

Ordered accordingly. E

Cases referred to:

1. Anisminic Ltd v Foreign Compensation Commission [1969] 2 AC 147
2. Ndugu Basil P. Mramba and the Attorney General v Ndugu Leons S. Ngalai Civil Appeal No. 27 of 1991 (unreported)
3. Attorney General v Amiri Zuberi Muya and Abdallah Zuberi Muya Civil Appeal F No. 32 of 1987 (unreported)
4. Attorney General v Joseph Musa Monko Civil Appeal No. 10 of 1987 (unreported)
5. In Re Abdallah Salim Ali Absalaam [1967] HCD No. 174 G

Werema, assisted by Matupa, Mselem and Nyangarika for the appellants.

Makani, assisted by Boaz, for the Respondent.

[zJDz]Judgment

Nyalali CJ:

This is a consolidation of two appeals involving the Attorney-General and Radio H Tanzania Dar es Salaam as the joint appellants in the first appeal, and Azim Suleman Premji as the appellant in the second appeal and in which the respondent is Dr Aman Walid Kabourou. The two appeals have been instituted in this court against the judgment of the High Court at Tabora where the respondent had filed an election petition under I section 108 of the

1996 TLR p160

NYALALI CJ

Elections Act, 1985 as amended by the Elections (Amendment) Act, 1992, seeking the A nullification of the results of a parliamentary by-election in which the third appellant, namely, Azim Suleman Premji, who had been a candidate sponsored by Chama Cha Mapinduzi, otherwise commonly know by its acronym as CCM, had been declared to be duly elected as the new member of parliament for Kigoma Urban Constituency. The B respondent, that is, Dr Aman Walid Kabourou, had also been a candidate sponsored by Chama Cha Demokrasia na Maendeleo otherwise commonly known by its acronymn as CHADEMA. There were four other political parties which fielded candidates to contest C the by-election, which was one of several by-elections to occur since Tanzania decided to become a multi-party democratic state. The Attorney-General was joined as a respondent to the petition in the High Court by virtue of the requirements of Rule 4(1) of the Elections (Elections Petitions) Rules, 1971. The said Azim Suleman Premji and D Radio Tanzania Dar es Salaam were the second and third respondents respectively. The High Court, Mchome J, granted the petition and declared the by-election results void. Predictably, those against whom judgment was given, were aggrieved by the decision of the High Court hence this appeal to this court. The Attorney-General and E Radio Tanzania Dar es Salaam are represented by Mr Werema, Senior State Attorney, assisted by Mr Matupa, State Attorney, whereas the said Azim Suleman Premji is represented by Mr Mselem, learned advocate, assisted by Mr Nyangarika, learned advocate. The respondent in this appeal, that is, Dr Aman Walid Kabourou is F represented by Mr Makani, learned advocate, assisted by Mr Boaz, learned advocate.

The memorandum of appeal submitted for the Attorney-General contains nine grounds of appeal whereas that submitted for the said Azim Suleman Premji, contains eleven grounds of appeal. Most of the grounds of appeal are common to all appellants. The G grounds of appeal submitted for the Attorney-General read as follows:

1. That the Honourable Judge erred in law in holding that `Tamko Rasmi' is not repugnant or ultra vires powers of the Electoral Commission and in relying on H the `Tamko Rasmi' to void the elections.

2. That the Honourable Judge erred in fact in holding that there was a corrupt practice and erred in law in holding that a corrupt practice is a tenable complaint under the Elections Act.

I 3. That the Honourable Judge erred in fact and law in holding that road construction in Kigoma during the campaign period

A was executed with the corrupt motive of influencing voters to vote for CCM candidate and that this affected the results of elections.

4. That the Honourable Judge erred in law in holding that there are grounds other than those stated in section 108 which can void the elections. B

5. That the Honourable Judge erred both in fact and law in holding that the campaign by the CCM National Chairman, Hon Augustine L Mrema, Minister for Home Affairs and Nalaila Kiula, Minister for Transport, Communications and C Works were illegal and that

they affected the results of elections. The Honourable Judge failed to evaluate the evidence of all witnesses who testified on illegal campaigns.

6. That the Honourable Judge erred in law in holding that Radio Tanzania Dar es Salaam was properly joined as a co-respondent and that RTD was an agent for a CCM candidate. D

7. That the Honourable Judge erred in law in holding that RTD broadcasts affected the results of the Elections.

8. That the Honourable Judge erred in fact and law in holding that the counting of E votes was not proper and that a recount was requested by the respondent and denied by the returning officer.

9. That the Honourable Judge erred in fact and law in holding that the non-filling of complaint Form (CF 7) by the respondent was due to security risk in the counting room and that this omission was not fatal to the Election Petition. F

All the above cited grounds of appeal submitted on behalf of the Attorney-General also appear in the Memorandum of appeal submitted on behalf of the said Azim Suleman Premji. There are however two additional grounds in Premji's memorandum of appeal. G These are numbers two and four. They read as follows:

`2. That the Honorable Judge erred in law and fact by holding that the appellant is solely liable to pay the petitioner's costs.

4. That the Honourable Judge erred in fact by holding that the top CCM leaders Ali Hassan H Mwinyi, Horace Kolimba, Kingunge Ngombale-Mwiru, A L Mrema and Nalaila Kiula uttered defamatory statements regarding the respondent and his party and erred in law in holding that such statements affected Elections and hence a ground to void the Elections.' I

It is apparent from the nature of all these grounds of appeal and

the issues raised at the trial in the High Court and in the course of hearing this appeal, A that they directly concern matters which urgently require judicial clarification to ensure that our country continues on the road of peaceful and orderly transformation from a one party state into a multi-party democracy. With this background, and bearing in mind the B immediate needs of the people of Kigoma Urban constituency to have an early decision in this case and of the fact that the matters requiring judicial clarification are of general public interest, particularly in view of the general parliamentary and presidential elections expected towards the end of next year, we have decided to deliver now our C decision on the points raised in the grounds of appeal, including the ground raised suo motu by the Bench concerning the nationality of the third appellant, but to reserve our reasons to be given later early next year on a date to be notified to the parties. These therefore are the decisions, in respect of which reasons will be given early next year. We D start with the grounds of appeal as contained in the Memorandum of Appeal of the Attorney-General and which appear also in that of the third appellant, Azim Suleman Premji.

In respect of ground number 1 in both memoranda of appeal, we find that the National E Electoral Commission had legal power to issue the `Tamko Rasmi' tendered at the trial as exhibit P15 but that under the circumstances of this case, that `Tamko Rasmi' was invalid. As to ground number 2 of the Attorney-General and number 3 of the third appellant, we find that the learned Trial Judge was correct in holding that there was a F corrupt practice and that a corrupt practice is a tenable complaint under the Elections Act. With regard to ground number 3 of the Attorney-General and number 5 of the third appellant, we find that the learned Trial Judge was correct in law in holding that the road construction in Kigoma during the campaign period was executed with the corrupt G motive of influencing voters to vote for CCM candidate and that this affected the results of the election. As to ground number 4 of the Attorney-General and number 6 of the third appellant, we are satisfied and find that there are grounds other than those mentioned under s 108 of the Elections Act, 1985 as amended by Act 6 of 1992 for nullification of H election results. On ground number 5 of the Attorney-General and number 7 of the third appellant, we are satisfied and find that the learned Trial Judge was correct in law in holding that the campaign by Hon Augustine L Mrema, Minister for Home Affairs and Hon I Nalaila Kiula, Minister for Transport, Communications and Works were illegal campaigns and that they

affected the results. We however find that the holding by the learned Trial Judge to the A effect that the campaign by the CCM Chairman, Ali Hassan Mwinyi was also illegal is incorrect in law.

We regard to ground number 6 of the Attorney-General and number 8 of the third appellant, we find that the learned Trial Judge erred in law in holding that Radio Tanzania B Dar es Salaam was properly joined as a co-respondent or party to the petition. As to ground number 7 of the Attorney-General and 9 of the third appellant, we are satisfied and find that the learned Trial Judge was correct in law in holding that the broadcasts of Radio Tanzania Dar es Salaam affected the results of the elections. On ground number C 8 of the Attorney-General and number 10 of the third appellant, we are satisfied and we find that the Trial Judge was correct in holding that the counting of the votes was not proper. On ground number 9 of the Attorney-General and number 11 of the third appellant, we are satisfied and find that the learned Trial Judge was correct in holding D that the failure to fill in form CF--7 by the respondent was due to security risk in the counting room and that the failure was not fatal to the election petition. As to ground number 2 of the third appellant, we are satisfied and we find that the learned Trial Judge E was wrong in law in holding that the third appellant was solely liable to pay the petitioner's costs. Finally as to ground number 4 of the third appellant, we are satisfied and find that the learned Trial Judge was correct in holding that CCM Chairman Ali Hassan Mwinyi, Horace Kolimba (Secretary General of CCM) and Kingunge F Ngombale-Mwiru and A I Mrema uttered defamatory statements regarding the respondent and his party and that such statements affected the results. However, we are also satisfied and find that the learned Trial Judge erred in holding that the statements made by Nalaila Kiula were defamatory. As to the point of nationality or G citizenship of the third appellant, we are satisfied and find that the third appellant was not a

Tanzanian citizen at the time of the by-election. As already mentioned, we shall give our full reasons early next year.

In conclusion, the appeals substantially fail and with the few exceptions where we have faulted the Trial Judge, we dismiss the appeals with costs both in this Court and the H Court below.

Nyalali CJ:

On the 28th December 1994 we delivered our judgment in these two consolidated I appeals but we reserved our reasons until now. However, before we proceed to give our reasons which are the basis of

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our judgment, we must present the matters which constitute the framework of our A reasons. We start with the matters which appear not to be in dispute between the parties to this cause. The parliamentary by election which is the subject of this case was organised and supervised by the National Electoral Commission established under the B Constitution of the United Republic of Tanzania. The functions and powers of the National Electoral Commission are derived from the Constitution and the Elections Act, 1985 as amended from time to time. Its membership includes a chairman and vice-chairman. At the time material to this case, both the chairman and vice-chairman C are justices of this Court. One Mr Alex Thomas Danzi, who gave evidence as the sixth witness for the respondents at the trial in the High Court, was at the material time serving under the Commission as Director of Elections and Secretary to the Commission.

There is also no dispute between the parties that prior to election day, the National D Electoral Commission appointed one Augustine Mudogo to act as a returning officer for the by-election. His substantive employment at the time was that of Director of Kigoma-Ujiji Town Council. After his appointment as a returning officer, he proceeded to E nominate eighteen assistant returning officers to help him in his duties.

The National Electoral Commission took other steps in connection with the by-election. These steps include the issuing of an official proclamation in Kiswahilli titled `Tamako Rasmi La Tume Ya Taifa Ya Uchaguzi Ya Jamhuri Ya Muungano', hereinafter called F simply `Tamko Rasmi.' Furthermore, he declared the period between 9 November 1993 and 22 November 1993 as being the period for registration of voters, the 17 November as the date for nomination of candidates, the period between 30 January and 12 G February 1994 as being the period for election campaigns and the 13 February 1994 as the polling day.

There is also no dispute between the parties that prior to the period prescribed by the Electoral Commission as the election campaigns period, the then Minister for Home H Affairs and Deputy Prime Minister, namely, Augustine Lyatonga Mrema, and the Minister for Communications, Transport and Works, namely, Nalaila Kiula, visited Kigoma Urban Constituency. The former visited the constituency twice, first on 14 January 1994 and second on 29 January 1994. The latter visited once on 26 January 1994. Both ministers I addressed public rallies attended by many people. Furthermore it is undisputed that among the problems which the people of Ki-

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goma Urban Constituency regarded as most pressing were the problems of Burundi and A Rwanda refugees and the bad condition of the Kigoma-Ujiji Road.

Again it would seem that there is no dispute between the parties to this case, that six political parties contested this by-election. The most serious contenders were Chama Cha Mapinduzi, commonly known by its acronym as CCM, and Chama Cha B Demokrasia Na Maendeleo, commonly known by its acronym as CHADEMA. As already mentioned in our judgment, the third appellant, namely Azim Suleman Premji was a candidate sponsored by CCM, whereas the respondent, namely, Dr Aman Walid C Kabourou, was a candidate sponsored by CHADEMA.

The parties are also not in dispute regarding the following matters concerning the status of the third appellant. He was born in 1954 in Kigoma Town. According to his birth certificate tendered at the trial as exhibit P18, both his parents, namely Suleiman Premji D and Nurbanu Suleiman Premji were of Indian nationality. One of these parents, namely, the said Nurbanu Suleiman Premji was born in this country at Dodoma in 1926. Subsequently both parents applied and became Tanzanian citizens by registration in 1963. In the same year, third appellant's father wrote a letter to the Principal Immigration E Officer seeking clarification about the status of his children. The letter, tendered at the trial as exhibit P22 got no response. When the third appellant attained the age of 18 years in 1972 he applied for and obtained a Tanzanian passport. He is currently the F holder of a Tanzanian Passport No 0020324 issued at Kigoma on 20th August 1992.

No dispute exists between the parties that during the period of election campaigns, a number of prominent politicians from the contesting political parties went to Kigoma Urban Constituency to campaign for the candidates sponsored by their respective G political parties. Among them were His Excellency Ali Hassan Mwinyi, President of the United Republic of Tanzania and National Chairman of CCM; Kingunge Ngombale-Mwiru, MP a Minister without portfolio and National Publicity Secretary of CCM and Horace Kolimba, MP, a Minister in the President's Office and then Secretary H General of CCM. The campaigns were covered by the Press and Radio Tanzania, Dar-es-Salaam.

Furthermore, there is no dispute between the parties to this case that after the conclusion of the polling process, the counting of voters took place at Bangwe Prison I Hall. The Returning Officer, that is, the first witness for the respondents at the trial (RWL)

appointed 15 pupils from Kigoma Secondary School to act as enumerators. The A process at Bangwe Prison Hall involved the following undisputed steps. At the beginning there was inspection of the ballot boxed by the candidates and their counting agents followed by the verification of the number of votes in each ballot box compared to the number of relevant registered voters. Thereafter all the ballot papers were put into drum. B Then four enumerators picked the ballot papers from the drum and handed them to six other enumerators seated at tables and each representing one of the six political parties contesting the election. Each of these six enumerators was to receive only the ballot papers for the political party he or she

represented, and to put such ballot papers into C bundles of one hundred each. Behind each one of these six enumerators was a counting agent of the relevant political party. The process went on smoothly until the drum was empty of ballot papers and the six enumerators completed putting the ballot D papers into bundles. It was apparent that CCM and CHADEMA had most of the bundles and that CCM had more bundles than CHADEMA.

Again there is no dispute between the parties that after all the ballot papers had been put into bundles, a representative of CHADEMA expressed dissatisfaction with the situation E and it was agreed by representatives of CCM, and CHADEMA and by the returning officer that representatives of CCM and CHADEMA should go through the bundles of each other. The exercise was completed as far as CHADEMA'S bundles are concerned and 53 bundles and a part were established. The exercise for CCM bundles however F was not completed. It was stopped. Neither the Respondent in this appeal nor any of his counting agents filled in the Form CF--7. The election results as announced by the Returning Officer were as follows: G

1. CCM: 9,475 votes
2. CHADEMA 5,366 votes
3. PONA 169 votes
4. TPP 45 votes H
5. NRA 36 votes
6. TADEA 24 votes

It was on the basis of these figures that the third appellant was declared the winner of the by-election.

We now turn to the relevant matters which are in dispute between the parties. It was part I of the petitioner's case at the trial in the

Eight Court that in order to ensure that the by-election for Kigema Urban Constituency A would be free and fair, the Electoral Commission, exercising its powers granted by the Constitution and the Elections Act 1985, made and issued a number of directives, regulations and notifications, including the Tamko Rasmi for compliance or observance B by all those concerned. In this way, the Electoral Commission prescribed and specified the period for election campaigns, mandated all contesting political parties to refrain from inter alia, using abusive or defamatory language or intimidation, and to educate voters about democracy and political tolerance. The Electoral Commission also C mandated the Ruling party to refrain from furthering its election campaign by using government employees and property or by using the government positions or officers held by some of its party leaders. In the same way the government was mandated to act impartially between the political parties, to disengage or distance itself from the D electioneering activities of the ruling party and to give equal opportunity through the radio and the government press to all contesting political parties.

It was part of the petitioner's case at the trial in the High Court that CCM and its candidate or their agents as well as the government or its agents violated many of the E regulations, directives or notifications made and issued by the National Electoral Commission, in that during their visits to Kigoma Urban Constituency, Hon Augustine Lyatonga Mrema (MP) the then Minister of Home Affairs and Deputy Prime Minister, and Hon Nalaila Kiula, (MP), Minister of Communications, Transport and Works, conducted F election campaigns for CCM and its candidate prior to the prescribed campaigns period; and in that during such premature campaigns, the Hon Augustine Lyatonga Mrema, intimidated the voters against voting for a non-CCM candidate; and in that during the official election campaigns period, His Excellency, President Ali Hassan Mwinyi used government property, that is, government aircraft and motor vehicles; and in that he also used defamatory language in furtherance of the election campaign in favour of the CCM candidate, and in that Hon Kingunge Ngombale-Mwiru used intimidating language against the CHADEMA candidate, and in that Hon Horace Kolimba, (MP), Minister in the President's Office and the then Secretary General of CCM, intimidated the voters against voting for a non-CCM candidate.

Furthermore, it was part of the petitioner's case that Radio Tanzania Dar-es-Salaam, which is government owned, openly campaigned for CCM, and favoured CCM is giving opportunity for

publicity in respect of the election campaigns. It was also part of the petitioner's case A that the central government, contrary to established programmes and practices intervened and took over from the Kigoma-Ujiji Town Council the maintenance work of the sensitive Kigoma-Ujiji Road in furtherance of the election campaign for the CCM B candidate. It was the contention for the petitioner that this act was corruptly done by the government to influence the voters infavour of the CCM candidate, and that the visits by Hon Augustine Lyatonga Merema, (MP) and Nalaila Kiula (MP) were connected with that corrupt objective. C

Also, it was part of the case for the Petitioner at the trial in the High Court that the process of counting votes at Bangwe Prison Hall was not completed but was prematurely stopped by the returning officer ostensibly for security reasons.

Finally, it was part of the case for the petitioner in the High Court that the CCM D candidate, that is Azim Suleman Premji was not a Tanzanian citizen and therefore not qualified to stand as a candidate in the parliamentary by-election. In conclusion the petitioner's case at the trial was to the effect that the violations of the rules of election conduct affected the results of the election, and that in any event the election of the CCM E candidate was null and void since he was not a Tanzanian citizen.

On the other hand the case for the defence at the trial consisted in the denial of the petitioner's case and in the assertion that the Tamko Rasmi made by the Electorial Commission was invalid as it was ultra vires the powers of the Commission and, in any F event, was not properly made and issued. Furthermore, it was the contention for the defence at the trial to the effect that under the multi-party system, it was no longer required to prescribe a specific period for election campaigns. It was also part of the defence base that CCM paid for the expenses of using

government property by the G President in connection with the by-election campaigns, and that in any event, there was no justification for restricting the President of the United Republic in using official transport and other facilities attached to his office while campaigning for a candidate of the President's political party. As to the visits to Kigoma by the two cabinet ministers, H that is, Hon Augustine Lyatonga Mrema, (MP) and Hon Nalalla Kiula (MP), the defence case was an assertion to the effect that none of the ministers went to Kigoma for electioneering purposes but that the former went there in connection with his ministerial I responsibil-

ities for the Burundi-Rwanda refugees and the latter went there in connection with his A ministerial responsibilities for maintenance of the Kigoma-Ujiji road. Furthermore, it was part of the defence case that the works being undertaken on the road were part of an on going maintenance programme and had nothing to do with the by-election. As to the defamation and intimidation allegedly made by CCM leaders, the defence case consisted mainly of general denial. As to the process of counting, the defence case is an B assertion to the effect that the counting process was completed and that the final exercise of going through the bundles of votes was not part of the counting process but was an exercise of verification requested by CHADEMA representatives and agreed to by the returning officer and representatives of CCM to ascertain the state of the votes in C the bundles. That exercise of verification was stopped at the instance of CHADEMA representatives after being satisfied with the position.

Again, it was part of the case in defence to the petition that Radio Tanzania D Dar-es-Salaam, as a government department, was wrongly joined to the petition in which the Attorney-General was the sole and proper party to be joined. Furthermore, it was the defence case that Radio Tanzania Dar-es-Salaam did everything possible within its limited resources to give equal opportunity of publicity to the contesting political E parties and was not in any way favouring CCM. Finally it was the contention of the defence to the petition to the effect that according to the relevant law and the available evidence, the CCM candidate was a Tanzanian citizen and therefore fully qualified to contest the by-election.

Fifteen main issues were framed by the High Court for its decision. The findings of the F High Court on many of these issues form the basis of the grounds of the two appeals as set out in our judgment. Before we give our reasons for our decisions on those grounds of appeal, we have to deal with a preliminary matter which arose at the commencement G of hearing of this appeal. Mr Makani, learned advocate for the respondent in this appeal gave a Notice of Preliminary Objection seeking to strike out grounds numbers one, three and six from the memorandum of appeal of the third appellant, and grounds numbers one, two and four from the memorandum of appeal of the first and second appellants. H After hearing both sides, we overruled the objection with costs.

We reserved our reasons until now. The argument of Mr Makani in support of the objection is that the above mentioned grounds of appeal are too general and not concise. With due respect to

learned counsel, we do not think that he is correct because I the two memoranda of appeal in which the relevant grounds of appeal are to be

found are in full conformity with the provisions of Rule 86 of the Court of Appeal Rules, A 1979 and because the particular grounds of appeal are traceable to specific parties of the judgment of the High Court. That is why we overruled the objection. For purposes of clarity, we need only to add that the order for costs is payable in any event. B

We now come to our reasons in support of our findings on ground number one in both memoranda of appeal concerning the validity of the Tamko Rasmi. We begin naturally by considering whether courts of law have jurisdiction to inquire into the validity of the C Tamko Rasmi in view of the provisions of sub-article (12) of article 74 of the Constitution. That sub-article as amended by Act 4 of 1992 states:

`No Court shall have jurisdiction to inquire into anything done by the Electoral Commission in the D exercise of its functions according to the provisions of this Constitution.'

On the face of it, it appears that the Constitution expressly prohibits the courts from inquiring into the validity of such things like the Tamko Rasmi, but on a deeper consideration of the principles that underlie the Constitution, it is obvious that such an E interpretation of the Constitution is wrong. One of the fundamental principles of any democratic constitution, including ours, is the Rule of Law. The Principle is so obvious and elementary in a democracy, that it does not have to be expressly stated in a democratic constitution. However, perhaps for purposes of clarity, there is an express F provision to that effect under the Constitution of the United Republic of Tanzania. It is Sub-Article (1) of Article 26 which states:

`Every person is obliged to comply with this Constitution and the laws of the United Republic.' G

In the light of this principle, we respectfully agree with the submission of Mr Werema, Learned Senior State Attorney to the effect that Sub-Article (12) of Article 73 of the Constitution cannot be interpreted so as to protect unconstitutional or illegal acts or H deeds, see the recent famous case of Anismic Ltd v Foreign Compensation Commission (1). Since Tanzania has reverted to de jure multi-party democracy, it is time the same was similarly articulated here. We are satisfied and we find that the High Court in this country, like the High Court in England, has a supervisory jurisdiction to I inquire into the legality of anything done or made by public author-

ity, much as the Tamko Rasmi. As a collorary, this Court has similar jurisdiction to do so A in a matter properly before it, as in the present case.

We now come to our reasons in support of our finding to the effect that the Electoral Commission is empowered to make and issue the Tamko Rasmi but under the B circumstances of this case, the Tamko Rasmi is invalid. It is patently clear that the Electoral Commission derives its powers under the Constitution and the Elections Act, 1985 as amended from time to

time. Under para (b) of sub-article (6) of article 74 as amended by Act 4 of 1992, read together with ss (2) of s 4 of the Elections Act, 1985 as C amended by Act 6 of 1992 it is provided that, `The Commission shall be responsible for the overall supervision of the general conduct of all Parliamentary and Presidential Elections in the United Republic'. Similarly under ss (1) of s 124 of the Elections Act 1985, it is provided that: D

`(1) The commission may make regulations for the better carrying out of the provisions of this Act and without prejudice to the generality of the foregoing, may make regulations--

(a) prescribing anything, which under the provisions of the purposes of this Act, may be prescribed; E

(b) prescribing forms of documents and declarations for the purposes of this Act.'

We have emphasised the relevant parts of this sub-section. Those parts clearly show F that the Commission is empowered to make regulations `for the better carrying out of the provisions of the Act' and to prescribe `anything' or `forms of documents and declarations' `for the purposes of this Act'.

In our considered opinion, we are satisfied that on a true and proper interpretation of the G above cited provisions of the Elections Act, the Electoral Commission is empowered to make regulations not only in furtherance of specific provisions of the Act, but also in furtherance of the purposes of the whole Act. From the scheme of the Act as manifested in the various provisions of the Act, including the provisions for secrecy of the ballot and H for polling agents, counting agents, one person one vote, one candidate one seat, as well as those provisions concerning election campaigns and election offences, it is evident that the overriding purpose of the Elections Act is to secure the election of the President of the United Republic and the members of the parliament of the United I Republic in a free and fair election. It is also implicit from the provisions of the Con-

stitution concerning the people, such as the preamble envisaging a representative A parliament elected by the people; Article 5 on the franchise or the right to vote; article 8(1)(a)(c) and (c) on sovereignty of the people, democracy, accountability to the people and people's participation in their government; article 21 on the fundamental right to participate in the affairs of the government either directly or through freely elected B representatives, that there is an underlying constitutional principle that requires democratic elections to be free and fair.

It is our considered opinion that this constitutional principle of free and fair elections has to be read into the Elections Act 1985, not only because of the express provisions of ss C (2) of s 1 of the Act which require the Elections Act, 1985 `to be read as one with the Constitution ...' but also because the Constitution is the basis of the elections. It follows therefore that the Electoral Commission has power to make regulations to ensure Free D and Fair Elections under both the Elections Act, 1985 and the Constitution. On a close examination of the contents of Tamko Rasmi, we respectfully agree with Messrs Makani and Boaz, learned counsel for the respondent in this appeal that the Tamko Rasmi was made and issued by the Electoral Commission to ensure a free and fair by-election in E Kigoma Urban Constituency. Unfortunately however, the

Electoral Commission did not properly exercise its power as prescribed under s 3 of the Act which states:

F `All regulations, directions and notices which the Commission is empowered to make, issue or give, shall be deemed to have been validly made, issued or given, if they are made, issued or given under the signature of the Chairman of the Commission or the Director of Elections'.

There is no controversy in this appeal that the Tamko Rasmi was not signed by the G Chairman or the Director of Elections as specifically required by the Act. Instead it was signed by the Vice-Chairman of the Electoral Commission. Since there is no provision under the Act or any other relevant law authorizing the Vice-Chairman to sign such H regulation, the Tamko Rasmi was clearly invalid as we mentioned in our judgment.

There is another point concerning the Tamko Rasmi which we need to mention not for purposes of supporting our judgment but as legal guidance for the conduct of future elections. It was argued in this appeal by learned counsel on the appellants' side to the I effect that the Tamko Rasmi was legally ineffective since it was neither

published in the Official Gazette nor otherwise made known to all the parties to the A by-election. Of course there is no controversy between the parties to this appeal that the Tamko Rasmi was not published in the Official Gazette and that such publication is not necessary for the validity of the Tamko Rasmi by virtue of the provisions of s 3 of the Act. It is our considered opinion that there is a distinction between the validity of a B regulation on the one hand, and the commencement or coming into effect of such regulation on the other hand. The validity of a regulation, including the Tamko Rasmi lies in compliance with the conditions for making it. Such conditions may exist in the C provisions of the Act which confers the power to make regulations or, under s 32 of the Interpretation of Laws and General Clauses, Act 1972 which concerns `provisions with respect to power to make subsidiary legislation'. In the case of regulations made under s 124 of the Elections Act, 1985 read together with s 3 of the same Act, it is apparent that D one of the essential conditions for the validity of such regulation is the signature of the Chairman or the Director of Elections.

As to commencement of subsidiary legislation, the relevant provision is s 27 of the Interpretation of Laws and General Clauses Act, 1972 which states: E

`Any subsidiary legislation published in the Gazette shall come into force on the date of such publication or, if it is provided either in the subsidiary legislation or in the Act that such subsidiary legislation or any provisions thereof shall come into force on some other date, such subsidiary F legislation or as the case may be such provisions thereof shall, subject to s 28, come into force on such other date.'

Section 28 concerns retrospective operation of subsidiary legislation. Unfortunately, the Tamko Rasmi was neither published nor did it specify when it was to come into effect. G Furthermore the Act under which the Tamko Rasmi was made does not specify the commencement of such regulations. Thus had the Tamko Rasmi been properly signed, it is doubtful if it could be

construed to have come into effect on a certain date, if at all it did. We hope that this situation would be avoided in the future by the Electoral H Commission.

As to the reasons in support of our finding on ground number one of the two appeals, these are connected to the reasons which support our finding on ground number 4 of the Attorney-General's Memorandum of Appeal, which is number 6 of the Third Appellant's I Memorandum of Appeal. Our finding on these grounds con-

curs with that of the trial court to the effect that there are grounds other than those stated A under s 108 of the Elections Act for nullification of election results. The finding is based partly on the reasons relied upon by the learned Trial Judge and partly on additional reasons. Section 108 as amended by Act 6 of 1992 states:

B `108(1) The Election of a Candidate as a member shall not be questioned save on an election petition.

(2) The Election of a candidate as a member shall be declared void on any of the following groups which are proved to the satisfaction of the court namely--

C (a) that, during the election campaign, statements were made by the candidate or on his behalf and with his knowledge and consent or approval with intent to exploit tribal, racial or religious issues or differences pertinent to the election or relating to any of the candidates or where the candidates are not of the same sex, with intent to exploit such difference; D

(b) non-compliance with the provisions of this Act relating to election if it appears that the election was not conducted in accordance with principles laid down in such provisions and that such non-compliance affected the result of the election;

E (c) that the candidate was at the time of his election a person not qualified for election as a member.

(3) Notwithstanding the provisions of ss (2) where upon trial of an election petition respecting an election under this Act the court finds that an illegal practice in connection with the election has been committed by or with the knowledge or approval of any of the candidate' agents and the court further F finds, after giving the Attorney-General or his representative an opportunity of being heard, that the candidate has proved to the court--

(a) that no illegal practice was committed by (the) candidate himself or with the knowledge and consent or approval of such candidate or his agent; and G

(b) that the candidate took all reasonable means for preventing the commission of any illegal practices at such an election;

(c) that in all respects the election was free from illegal practice on the part of the candidate and his agents;

then, if the court so recommends, the election of such candidate shall not by reason of any such practice be void'. H

The learned Trial Judge, Mchome J, was of the opinion that the grounds listed under paras (a) to (c) of ss (2) above cited are not exhaustive by reason of the fact that the word `only' is not used

therein. He was also of the opinion that the defences provided I under paras (a) to (b) of ss (3) for illegal practice necessarily imply

that illegal practices are grounds for nullification of election results though not expressly A stated to that effect under section 108. As we have already stated, we concur with the reasons given by Mchome J, and we have additional reasons for upholding his finding. First, we are satisfied that the established rule of interpretation embodied in the Latin Maxim `Expressio Unius Est Exclusio Alterius' that is, where matters are expressly B stated, then any other matters of the same class not so expressly stated are excluded, does not apply to s 108 because that section provides defences to matters which are not expressly stated therein. Second, taking into account the principle which underlies C the Constitution and the Elections Act, 1985 that elections shall be free and fair, we are of the considered opinion that an election which is generally unfree and unfair is not an election at all as envisaged by the Constitution and the Elections Act, and consequently anything which renders the elections unfree or, and unfair is in law valid ground for D nullification of such purported election. We are further of the considered opinion that any law which seeks to protect unfree and unfair elections from nullification would be unconstitutional.

For purposes of clarity we need to point out here that the removal of illegal practices and E corrupt practices from s 108 by the Elections (Amendment) Act 1992 (Act 6 of 1992) as specific grounds for nullification of election results cannot be construed as having the effect of making illegal practices or corrupt practices permissible under the Elections Act, 1985. What the amendment achieved was to make illegal practices and corrupt F practices per se no longer sufficient grounds for nullification of election results under the circumstances stipulated under s 108(3)(a) and (d) as it then was before the amendment. Paragraph (a) of ss (3), as it then was, stated;

G `that by reason of corrupt or illegal practices committed in circumstances whether similar to those before enumerated or not the majority of voters were, or may have been, prevented from electing the candidate whom they preferred.'

As to para (d) it stated: H

`that a corrupt or illegal practice was committed in connection with the election by or with the knowledge and consent or approval of the candidate or by or with the knowledge and consent or approval of any of his agents;' I

In our considered opinion, illegal and corrupt practices are still

relevant either as non-compliances or as electoral misconduct which renders elections A unfree or, and unfair, contrary to the principles and objectives which underlie the Constitution and the Elections Act.

It is pertinent to point out for purposes of clarity that it is conceivable to have generally B free and fair elections but which are afflicted with a non-compliance of specific provisions of the

Elections Act and which affects the results of the elections. In other words not every non-compliance which affects the results of an election necessarily makes an election unfree and unfair. A case in point is where a significant number of C unregistered persons are allowed to vote in an election but not for any particular candidate. Such an incident would clearly be a non-compliance with the provisions of s 61(a) and (b) concerning methods of voting. A non-compliance of this nature may affect the results but does not necessarily make the election unfree and unfair. D

The last point we need to point out, in view of the forthcoming presidential and parliamentary elections is a lacunae or gap in the Elections Act concerning presidential elections. Section 108 deals only with challenges to elections of constituency members of the Parliament of the United Republic. This is clear under s 2 which defines a E `member' as being `in relation to the National Assembly, a constituency member'. We can find no provision concerning disputed Presidential elections. We cannot understand why this lacunae was not remedied under the Elections (Amendment) (No 2) Act, 1992 F (Act 21 of 1992) which amended the provisions of the Elections Act, 1985 concerning presidential elections. The amendments therein contained went as far as the apply to presidential elections, the provisions of Chapters IV and V of the Elections Act, 1985 which deal with qualification of candidates and election procedure respectively. Chapter G VII which deals with invalidation of election results was not applied to presidential elections. The omission is puzzling, since in multi-party Presidential Elections, such lacunae is an invitation to political chaos. We hope appropriate amendments of the relevant law would be made before the forthcoming multi-party presidential elections. H

Let us now revert to our finding, concurring with Mchome J, on ground number 2 of the Attorney General's Memorandum of Appeal, which is ground number 3 of the third appellant's Memorandum of Appeal. This concerns the holding that there was a corrupt I practice and that such practice is a tenable complaint under the Elections Act. We have already disposed of the question of corrupt

practice being a tenable complaint. With regard to the existence of a corrupt practice, A the finding by Mchome J to the effect that the third appellant corruptly offered to turn his building popularly known as `Azim Magorofani' into a dispensary providing free services to the people of Kigoma Urban Constituency appears to be based mainly on the B credibility of witnesses. There were contradictions between the witnesses for either side. The learned Trial Judge was of the view that the contradictions between the witnesses for the petitioner's side concerning whether what was promised was a dispensary or a clinic were minor compared to the contradictions on the defence side on C whether the corrupt offer was greeted with cheers or silence from the public attending the election rally. Furthermore, the learned Trial Judge found one of the witnesses for the defence side to be a liar. We can find no basis for differing with the learned Trial Judge in his evaluation of the credibility of the relevant witnesses. D

Next we come to our reasons in support of our finding on ground number 3 in the Attorney-General's Memorandum of Appeal, which is number 5 in the third appellant's Memorandum of

Appeal, in which we upheld the finding of the learned Trial Judge to the E effect that the road construction in Kigoma during the campaign period was executed with the corrupt motive of influencing voters to vote for the CCM candidate and that it affected the results of the election. The basis of the finding of the learned Trial Judge appears to be threefold. Firstly, he was of the view that the maintenance work of the F Kigoma-Ujiji road was undertaken by the Central Government as a reward for the people of Kigoma urban constituency agreeing to vote for the CCM candidate. Secondly, he was of the view that the undertaking by the Central Government was not made in the ordinary course of business of government. Thirdly he was also of the view that since G the undertaking was made by prominent cabinet ministers at well attended public rallies in the constituency, it must have influenced the voters to vote for the CCM candidate.

We respectfully agree with these reasons. There was credible evidence given by witnesses who attended the public rallies addressed by Augustine Lyatonga Mrema, the H then Minister of Home Affairs and Deputy Prime Minister, and by Nalaila Kiula, the Minister of Communications, Transport and Works. These witnesses include one Kanyari Donatus, the sixth witness for the petitioner (PW 6), one Ramadhani Juma Kalovya, the seventh witness for the petitioner (PW 7), one Hamisi Shabani Maranda, I the ninth witness

for the petitioner (PW 9), one Kudra Mussa, the tenth witness for the petitioner (PW.10) A who tape-recorded one of the speeches made by Hon Augustine Lyatonga Mrema, and one Mwinyi Baruti, the eleventh witness for the petitioner (PW 11). The testimony of the witnesses who attended the public rallies addressed by Hon Augustine Lyatonga B Mrema and Hon Nalaila Kiula shows clearly that the Kigoma-Ujiji road was being repaired by the central government as consideration for the people of Kigoma Urban constituency agreeing to vote for the CCM candidate. PW 6 in a part of his testimony told the trial High Court regarding Hon Mrema's speech: C

`He asked if you get a tarmac road will you have any quarrel with CCM? And the citizens said they would have none. He asked how many would vote for CCM if we gave you a tarmac road. All people raised up their arms ...' D

PW 11, in a part of his testimony concerning the speech made by Hon Nalaila Kiula, told the trial High Court:

`Then he said I have come here to remove the stigma you are putting on CCM. The tarmac you wanted will be put on the road by the Government'. E

Further on the witness said, inter alia:

`he said he was sent by the President to remove the stigma or in Kiswahili "nuksi" which was thrown at CCM'. F

No witness was produced by the other side to seriously contradict these or other witnesses who testified to the same effect. On a paper evaluation of the relevant evidence directly linking the road works with voting for CCM, no reasonable court or G tribunal can come to a conclusion other than that the maintenance work of the Kigoma-Ujiji road was valuable consideration given

by the central government to the people of Kigoma Urban Constituency for agreeing to vote for the CCM candidate. H

As to the second reason, it is beyond controversy on the evidence that the Kigoma-Ujiji Town Council had failed to live up to its responsibilities of maintaining the road in question under the road maintenance programme which had been in existence for a long time. There was credible evidence given by one Ven Kayamba Ndyamkama, the I seventh witness for the Defence (RW 7) who is a road maintenance management engineer in the relevant ministry

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headquarters in Dar-es-Salaam, to the effect that the responsibility of maintenance of A the country's roads is divided between the central government and the local authorities, and that local authorities can request the central Government to assist in maintenance of local authority roads, whenever the need arose. The evidence given by one Augustine Mudogo, the first witness for the defence (RW 1) who is the Director of Kigoma-Ujiji B Town Council, appears to show that the central government had assisted his council in maintenance of the road in question by providing funds amounting to Shs7,000,000/= in 1992 and Shs10,000,000/= in 1993. The evidence of this witness together with that of RW 7 however shows that at the time of the by-election, the central government decided C to take over the maintenance work of the Kigoma-Ujiji road, and Hon Augustine Lyatonga Mrema instructed RW 1 to put aside the Shs10,000,000/= which had been previously supplied and intended by the central government to assist the town council. This sudden D and total intervention by the central government, in the absence of an earthquake or similar disaster or situation affecting the Kigoma-Ujiji road is clearly way out of the ordinary course of government business.

With regard to the third reason relied upon by the learned Trial Judge concerning the E large number of people who attended the public rallies addressed, and corruptly influenced by Hon Mrema and Hon Kiula, there was evidence given by witnesses for the petitioner, which was not seriously contradicted by the defence, and which showed that large numbers of people attended these rallies. F

It was contended by counsel for the appellants to the effect that there was no one who testified about being influenced to vote for CCM by this road maintenance undertaking. However, the contention collapsed when counsel for the appellants conceded that under G the principle of secrecy of the ballot, no one could be expected to testify to that effect. In our considered opinion the fact of influence affecting the vote can be inferred from the circumstantial evidence relating to the large number of people who attended the public rallies, the pressing desire of the people of Kigoma Urban constituency to have their H road repaired and the respect usually given by the people of this country to ministers of their government.

For purposes of clarity we need to point out here that a corrupt practice under the Elections Act, 1985 is not necessarily the same as corruption under the Prevention of I Corruption Act, 1972. This can be seen under the provisions of s 97 of the Elections Act which states various categories of persons deemed guilty of bribery. It is

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evident that such persons are not necessarily guilty under the Prevention of Corruption A Act, 1972.
We need to point out further that a corrupt practice under the Elections Act is capable of being construed, as we mentioned earlier, either as being a non-compliance in the sense of being a failure to abstain from committing the offence of bribery as defined B under s 97 of the Elections Act, or as, where it is extensively done, as a misconduct which renders the election unfair. In the present case the corrupt undertaking to repair the road amounted not only to a non-compliance with the prohibition against electoral bribery contra s 97 C of the Elections Act, but was also unfair to the political parties which were challenging CCM. Had the Tamko Rasmi been properly signed and therefore valid, the intervention by the central government would also have been a non-compliance with the directives of the Electoral Commission against the use of government property in furtherance of the campaign of one political party. D
With regard to our finding on ground number 5 in the Attorney-General's Memorandum of Appeal, which is number 7 in the third appellant's Memorandum of Appeal, in which we upheld the learned Trial Judge to the effect that the campaigns by Hon Augustine E Lyatonga Mrema, (MP) and Hon Nalaila Kiula (MP) were illegal campaigns which affected the results of the by-election; and in which we faulted the finding concerning the campaign of the CCM Chairman, Ali Hassan Mwinyi, our reasons are as follows. We are satisfied that under the Elections Act, 1985 read together with the Constitution, the F Electoral Commission is empowered to prescribe a specific period for election campaigns as it did in the present case. As we have already mentioned earlier, this power is derived under article 74(6)(b) of the Constitution read together with s 124 of the Elections Act.
Of course no where in the Elections Act, 1985 is to be found a specific provision G requiring the Electoral Commission to prescribe a period for election campaigns. We are of the view that the absence of such a requirement does not derogate from the general power of the Electoral Commission to do so. We think it is wise for the Commission to continue to do so in order to ensure the fairness of elections and to H enable to effectively supervise such elections.
In the present case, the period prescribed for campaigns was from 31 January to 12 February 1994. By campaigning before the commencement of this period, Hon Mrema (MP) and Hon Kiula (MP) did conduct illegal campaigns, which on the authority of the I case of Ndugu Basil P Mramba and the Attorney-General v Ndugu Leons S

Ngalai, (2) such illegal campaigns were non-compliance. As already mentioned earlier in A respect of another point, many people attended the campaign rallies addressed by these ministers. On the basis of the circumstantial evidence mentioned earlier, the illegal campaigns must have affected the results of the by-election.
The learned Trial Judge however erred in holding that the election campaign conducted B by CCM Chairman Ali Hassan Mwinyi was also illegal. All the evidence show that the CCM Chairman, who is also President of the United Republic, arrived in Kigoma for election

campaign purposes on 10th February 1994. That was within the prescribed period. The fact that some government property was used in connection with the visit C and campaign did not turn his campaign into an illegal one. What can be said is that if the Tamko Rasmi had been valid, such use of government property might have been a violation of the prohibition contained in the Tamko Rasmi. But since the Tamko Rasmi D was invalid we do not have to go into the details of the matter except on one aspect. We must point out that in a country like ours with a constitution establishing an Executive President, who is also Commander-in-Chief, restrictions concerning his conduct during multi-party election campaigns must be such as not to endanger his personal security or E disable him from effectively discharging his constitutional responsibilities as President and Commander-in-Chief. We think that restrictions which adversely affect the President's ability to discharge his responsibilities at anytime would be unconstitutional. On the other hand, since fairness is one of the important elements in a democratic F election, the use of government property or government employees by the President during election campaigns in a manner which is not necessary for his personal security or the discharge of the responsibilities of the Office of President or Commander-in-Chief G is prohibited in accordance with the principle of fairness. We think that a violation of this prohibition, if it renders elections generally unfair, will result in nullification of elections results. As for the reasons in support of our finding on ground number 6 of the H Attorney-General's Memorandum of Appeal, which is number 8 in the third appellant's Memorandum, in which we faulted the learned Trial Judge in holding that Radio Tanzania Dar-es-Salaam was properly joined as a party to the petition, it is obvious that the learned Trial Judge was led to his erroneous conclusion by replying entirely on I procedural law, where substantive law is also involved. The issue framed for decision by the High Court at the trial was,

`whether the third respondent was properly joined in this petition'. In resolving this issue A the trial court relied on the provisions of Rule 4(2) and (3) of the Election Petition Rules, 1971 as well as the case of Attorney-General v Amiri Zuberi Muya and Abdallah Zuberi Muya (3) which considered the procedural aspect of joinder of parties in election petitions. B

Unfortunately, the learned Trial Judge in the case before us failed to notice that, unlike in the Amiri Zuberi Muya case, there is a matter of substantive law involved, and that is whether Radio Tanzania Dar-es-Salaam is a legal person capable of being joined to the election petition. Learned counsel on both sides in this appeal conceded and we think C rightly so, that Radio Tanzania Dar-es-Salaam was at the material time purely a government department which is not separately established by any law as a body corporate. Learned counsel on both sides rightly concurred with us that under those circumstances Radio Tanzania Dar-es-Salaam, had no legal capacity to be joined as a D party to the petition, separately from the Attorney-General, who represents the government.

We must now turn to the reasons supporting our finding on ground number 7 of the Attorney-General's Memorandum of Appeal, which is number 9 of the third appellant's E Memorandum of Appeal, on which we confirmed the finding of the learned Trial Judge to the effect that the

broadcasts of Radio Tanzania Dar-es-Salaam affected the results in favour of the CCM candidate. During the hearing of this appeal, it was argued by learned counsel for the appellants to the effect that no evidence was adduced at the trial to show F that the people in Kigoma Urban Constituency possess any radio sets or receivers and that they listened to the relevant broadcasts of Radio Tanzania Dar-es-Salaam during the material time.

With due respect to learned counsel for the appellants, we think that this is a desperate G argument. It is common knowledge in this country, and which therefore requires no evidential proof, that there is a large number of people both in the rural and urban areas of Tanzania who possess radio sets or receivers and who regularly listen to Radio Tanzania Dar-es-Salaam. On that premise, it can reasonably be inferred that a large H number of people in Kigoma Urban Constituency must have listened to the broadcasts of Radio Tanzania Dar-es-Salaam regarding the by-election in their constituency. But did these broadcasts affect the results of the by-election in favour of the CCM candidate? I

To answer this question, one must consider two aspects of the matter. The first is the air time given by Radio Tanzania Dar-es-

Salaam for the campaigns in favour of the CCM candidate compared to the campaigns A in favour of the other political parties contesting the by-election. From the evidence given by Eric Raymond Mchatta, the fifteenth witness for the petitioner (PW 15), which was not seriously challenged by the defence, it is quite clear that the CCM campaigns B were given more air time compared to the combined air time given for the campaigns of the other political parties contesting the by-election. The explanation given for this glaring inequality as per the evidence of Habib Juma Hyundo, the eighth witness for the defence (RW 8), who is the chief editor of Radio Tanzania Dar-es-Salaam, is that, apart from C CCM, the other political parties did not know how to utilize the facilities of Radio Tanzania, Dar-es-Salaam. Taking into account that Radio Tanzania, Dar-es-Salaam is government property, we are of the considered opinion that this is not a sufficient explanation. As a government radio, and in fairness to the contesting political parties, it D was duty bound to take the initiative to offer such political parties equal air time and let them choose to utilize the whole or part of the air time thus offered. We are satisfied that it was the absence of such a system which allowed CCM to utilize more air time than the other political parties. E

The second aspect of the matter is the nature of the contents of the relevant broadcasts by Radio Tanzania Dar-es-Salaam. It is apparent from the evidence that the broadcasts, including surprisingly those made to reflect the official position of Radio Tanzania, F Dar-es-Salaam itself, were biased in favour of the CCM candidate. The surprising example is the programme known as Mazungumzo Baada Ya Habari aired for a number of days during the period of the by-election campaigns commencing on 4 February 1994. Ostensibly what was aired in the programme was meant to congratulate CCM on G its 17 birthday the following day. But as it turned out, the programme went on for a number of days and much of its contents were clearly political

campaign material in favour of the CCM candidate. We need only to reproduce a few parts of the board case to demonstrate what we mean. In one part it says in Kiswahili: H

`Na kwa bahati nzuri sana, wapiga kura wa JIMBO LA ILEJE wiki iliyopita waliitun za CCM zawadi ya kuanzia sherehe za kuzaliwa kwake kwa kumchagua kwa kura nyingi sana mgombea wake wa kiti cha Bunge Ndugu CHEYO. Hivi sasa, CCM inasubiri kwa hamu kubwa kuona kama itapata zawadi ya I kukamilisha sherehe zake hizo kutoka kwa wapiga kura wa Jimbo la KIGOMA MJINI.

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A MATOKEO ya uchaguzi mdogo wa Jimbo la Ileje yanatudhihirishia mambo mengi muhimu ambayo yanapaswa kuzingatiwa na kila mwanasiasa, na hasa kila mpinzani wa CCM na kila Chama cha Siasa nchini.

UKWELI wa kwanza na wa dhahiri kabisa ni kwamba CCM bado ni chama chenye nguvu kubwa sana na chenye wapenzi wengi walio wanachama na wasio wanachama. Tunasema CCM ina wapenzi B ambao hata siyo wanachama wake kwa sababu kuna baadhi ya watu wanafanya makosa kwa kufikiria tu kuhusu namba ya wanachama wa CCM wenye kadi na kupiga hesabu zao zote za kisiasa kwa kuzingatia nambari hiyo ambayo haijafikia hata milioni tano.

KOSA JINGINE kubwa wanalofanya ni kudhani kwamba WATANZANIA wote wasio wana-CCM kwa C lazima watavipigia kura vyama vingine. HIYO siyo kweli hata kidogo'

Yet in another part it says: D

`CCM tokea awali imekuwa Chama cha Umma badala ya wateule wachache. Tena imekuwa na sera nzuri ambazo zimeitikia matakwa ya wananchi wote kwa wakati wote ambao imekuwa katika uongozi'. E

Having examined the contents of various broadcasts of Radio Tanzania Dar-es-Salaam, including the above mentioned Mazungumzo Baada Ya Habari, and bearing in mind the time tested maxim that information is power, we were bound to conclude, as the learned F Trial Judge did, to the effect that these broadcasts in favour of CCM must have influenced the by-election results in favour of the CCM candidate.

Let us now turn to our reasons supporting our finding on ground number 8 of the Attorney-General's Memorandum of Appeal, which is number 10 of the third appellant's G Memorandum of Appeal, on which we upheld the finding of the learned Trial Judge to the effect that the counting of the votes was not proper. It is apparent from the proceedings in the High Court and before this Court, that although there is great controversy on whether the process of counting the votes was completed or H prematurely stopped before the results were announced, there is common ground, that the final exercise undertaken by agreement between CCM and CHADEMA representatives and approved by the returning officer, involved going through the bundles of votes for each political party, after a representative of CHADEMA had expressed I dissatisfaction with the position reached. It is this exercise of going through the bundle of votes which was stopped after a number of CCM bundles had been gone through.

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The first question that arises here is whether this exercise is permitted by law. In our A considered opinion, we are satisfied that the answer is in the negative. Under s 78 of the Elections Act, there is only one course of action open where, as was the case here, a candidate or counting agent expresses dissatisfaction, and that course of action is for the returning officer to grant a recount. On the authority of the case of The B Attorney-General v Joseph Musa Monko (4), the returning officer is duty bound to grant a first and second request for recount. This was not done in the present case. Instead, an extraneous exercise was undertaken. This was clearly not proper in law. C

A more serious impropriety however concerns the petitioner's complaint to the effect that the actual counting of the votes never really started, and that the exercise of going through the bundles which was aborted on alleged security grounds, was merely for the purpose of ascertaining whether the bundles were correct in the number and kind of D votes contained therein. Ample evidence was adduced on both sides on this aspect of the case. The evidence on the defence side was intended to show that the counting of votes had been completed when the exercise of going through the bundles was undertaken at the request of a CHADEMA representative. The learned Trial Judge, after E evaluating the evidence on both sides, accepted the version given for the petitioner's side. Was the learned Trial Judge correct in so doing?

We have given the evidence a fresh look, and we are satisfied that the learned Trial Judge was correct, particularly when account is taken of the report made by a journalist F of Radio Tanzania Dar-es-Salaam, concerning the activities that were then going on in the counting hall. That report, by one Abbisay Stephen, was broadcast on the state radio and an official record of the programme was made and kept by Radio Tanzania Dar-es-Salaam. A transcript of the record was produced as exhibit R 49 as part of the G evidence for the defence. It is our considered opinion that since Radio Tanzania Dar-es-Salaam is a government department managed by public servants, the record of that broadcast was properly admitted as evidence under the provisions of s 37 of the Evidence Act, 1967 which states: H

`Any entry in any public or other official book, register or record, stating a fact in issue or relevant fact, and made by a public servant in the discharge of his official duty or by other person in performance of I a duty specially enjoined by law of the country in which such book, register or record is kept, is itself a relevant fact.'

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That record reads in Kiswahili as follows: A

`Asante Mbonde zoezi la kuhesabu kura lilianza saa moja asubuhi kule Bangwe Magereza na zoezi hilo litaendelea mpaka saa 10 jioni. Tatizo lililojitokeza ni kwamba ilipofika saa kumi kura zilikuwa B zimepangwa vizuri kura 100 kwa kila mgombea ili kurahisisha kazi ya kuhesabu kura. Sasa ilipofika saa kumi jioni ndiyo ikabidi waanze kuhesabu kura ili kuhakikisha kwamba kweli zile ambazo zinafungashwa 100/100 ni kweli zimetimia. Zoezi hilo litaendeleo mpaka usiku'.

We are of the considered opinion that this evidence corroborates the evidence given for C the petitioner's side to the effect that the exercise of going through the bundles of votes was purely for the purpose of ascertaining the state of the bundles of votes prior to the actual process of counting the votes case for each candidate. It follows therefore D that since this exercise of ascertaining the state of the bundles was prematurely stopped allegedly on security grounds, the counting process had not been concluded when the election results were announced by the returning officer.

Next we come to the reasons in support of our finding on ground number 9 of the E Attorney-General's Memorandum of Appeal on which we concurred with the finding of the learned Trial Judge to the effect that the failure of the petitioner to fill in form CF--7 at the end of the activities in the counting hall was due to alleged security risk. Obviously, having found that the counting process was aborted, we were bound, like the learned F Trial Judge, to accept the evidence given for the petitioner to the effect that the abortion of the counting process allegedly for security reasons was the cause of the failure by the petitioner to fill in Form CF--7 as required by the regulations of the Electoral Commission. We are also satisfied that there is no longer any provision under the G Elections Act, 1985 as amended or under any other relevant law which renders the failure by the petitioner to fill in Form CF--7 fatal to the petition. Undoubtedly, in a proper case, such a failure could undermine the credibility of a petitioner or his or her agent. This is not such a case.

We now move on to give our reasons in support of our finding on ground number 2 of H the Memorandum of Appeal of the third appellant, on which we faulted the finding of the learned Trial Judge that the third appellant is solely liable to pay the petitioner's costs. We are of the considered opinion that the third appellant is liable to pay only those costs I arising from the electoral misdeeds committed either by himself or by his agents including the political party which

sponsored him, and which constitute the grounds for nullification of the election results. A He is not liable to pay the costs arising from the misdeeds of agents of the Electoral Commission or the government. Those are payable by the government of the United Republic. For purposes of clarity, we hold that the illegal campaigns conducted by Hon Augustine Lyatonga Mrema and Hon Nalaila Kiula are to be construed as having been B done under the auspices of the political party which sponsored the candidature of the third appellant.

Next we turn to the reasons supporting our finding on ground number 4 of the third C appellant's Memorandum of Appeal on which we upheld the finding of the learned Trial Judge to the effect that the CCM Chairman, Ali Hassan Mwinyi; the then CCM Secretary-General, Horace Kolimba; the CCM National Publicity Secretary, Kingunge Ngombale-Mwiru, and the Hon Augustine Lyatonga Mrema, (MP), then Minister of Home D Affairs and Deputy Prime Minister uttered defamatory statements regarding the petitioner and his political party and that such statements affected the election results. We however faulted the learned Trial Judge in

holding that the statements made by Hon Nalaila Kiula, (MP), Minister of Communications, Transport and Works were defamatory. E

We have given the evidence adduced on this point a fresh look as we are bound to do in a first appeal. The evidence consists in the testimony of witnesses who attended the campaign meetings or rallies addressed by these eminent persons. All the testimony F was given on the side of the petitioner. The defence produced no witness to contradict the petitioner's witnesses. PW 6, one of the witnesses for the petitioner told the trial High Court in a part of his testimony as follows:

G `On the 15/1/94 I was near Kawawa stadium. We were there waiting to hear the speech of the Minister for Home Affairs Lyatonga Mrema. Almost the whole town was there ... then Mr Mrema's speech followed.

He started to warn us against opposition parties. He said who knows not how to die should look at the grave. He asked us to go to Lake Tanganyika and see Burundi Refugees and said they were a H product of opposition parties. At Lake Tanganyika Stadium there were thousands of Burundi Refugees who were living in real hardships. They slept outside and had no shelter from rain or sun.'

In another part of his testimony the same witness told the trial High Court: I

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A `... He repeated that if other parties were elected this will be a cause for war like in Angola, Burundi, Liberia, etc ...'

Another witness for the petitioner, that is PW 7, in a part of his testimony told the trial High Court regarding the speech by Hon Mrema (MP): B

`... Then he continued "don't you know that opposition parties will bring chaos and a breach of the peace in this country?" ...'

There is yet another witness for the petitioner, that is, Salim s/o Malick, the eighth C witness (PW 8) who, in a part of his testimony, regarding a campaign speech delivered by Hon Kingunge Ngombale-Mwiru (MP), told the trial High Court:

`A lot of people attended that meeting. They could be three or four thousand people ... some of the D words by the speaker Mr Ngombale-Mwiru are that the person we want to elect first tore the national flag and if he had failed to respect the national flag, will he respect you? He said that that person does not respect his mother. He comes and lives in a hotel instead of at his mother's house. He said E his mother lives in a mud house. Even when his father died he did not come to bury him but stayed in the United States of America....'

There is another witness for the petitioner, namely, Hamisi Shabani Maranda, the ninth witness (PW 9) who in a part of his testimony concerning a campaign speech by Hon F Horace Kolimba, told the trial High Court:

`... Kolimba told us that electing another party besides CCM is to bring war and refugees like in Burundi, Rwanda and other countries. There were very many people, between 20 and 25 thousand G people. The whole town was called by loud speaker to attend the meeting ...'

Another witness for the petitioner namely, George Mazula, the second witness, (PW 2) who in a part of his testimony concerning a campaign speech given by the CCM National H Chairman,

His Excellency President Ali Hassan Mwinyi, told the trial High Court:

`... I heard him talking. He talked many things but one of them is calling opponents puppets and mercenaries.... And that those puppets were given money and people should take the money and eat I it as it was their money.... I was not expecting such words from a president but he uttered them'

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In another part of his testimony, this witness told the trial High Court: A

`... "Mamluki au Vibaraka" are mercenaries or people paid by outsiders to do something for them ...' B

Further on the witness testified inter alia:

`At that meeting the President said, "Hawa wapinzani vibaraka, mamluki wamepewa pesa, wananchi zichukueni mzile".' C

The evidence adduced at the trial shows that these statements were widely published in the press. There can be no doubt that those who uttered those statements were aware that the statements would be published in the press.

It is our considered opinion that the statements disclosed by all this testimony, were D defamatory of the political parties in opposition to CCM, and in particular, to the petitioner and his political party. In addition, the statements made by Hon Mrema MP, and Hon Horace Kolimba MP were intimidating to the electorate of Kigoma Urban constituency. Since defamation is an offence under the law of the land, everyone is prohibited from E committing it at all times including during election campaigns. We are satisfied that legally indefensible or inexcusable defamation committed in furtherance of an election campaign, as was done in the present case amounts to a breach of sub-article 26 of the Constitution which categorically states, `Every person is obliged to comply with this F Constitution and the laws of the United Republic'. It is our view that this constitutional command applies at all times. It follows therefore that presidential and parliamentary elections are required to be conducted not only with due observance of the Constitution G and the Elections Act, but also with due observance of the general law of the land. We are further satisfied that because of the large number of people who attended these campaign rallies and the respect of people of this country usually give to their President and his ministers, the defamatory and intimidatory statements in question must have affected the election results. As to the statement made by Hon Nalaila Kiula (MP) H Minister of Communications, Transport and Works about the road works being aimed at removing a stigma from CCM, we are satisfied that his remarks did not amount to defamation of anyone.

Finally we come at last to the reasons in support of our finding concerning the I citizenship of the third appellant. The issue of citi-

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zenship was extensively argued at the trial in the High Court. The learned Trial Judge A decided to resolve the issue by giving the third appellant the benefit of the doubt. Although the petitioner's side made no cross-appeal to us on the issue, we decided to raise the issue on our own initiative in this appeal in the interest of justice. We did so B because citizenship is the basis of everything else that is exercised by political parties and candidates under the Elections Act. Undoubtedly we have the jurisdiction to do so under the provisions of s 4(2) and (3) of the Appellate Jurisdiction Act, 1979 as amended by Act 17 of 1993 concerning powers of revision. C It is apparent on the face of the record that the learned Trial Judge used the wrong approach in resolving the issue. He seems to have approached it as an issue which required to be resolved on the basis of Indian law, rather than on the basis of the law of Tanzania. This can be seen from the following extract of his judgment: D

`As for the citizenship issue it had been argued that the Indian book referred to by the Petitioner is an old 1968 book and the condition prevailing at present in India has not been proved. Mr Makani for the Petitioner had argued that the author of that book is of high repute and that book is an authority used E in the UK, Canada, the USA and Tanzania.

... I do not doubt the genuineness of the book cited.... But taken as it is and presumed to be expounding on the true position of the Law of India the book explains the position on or before 1968. The present position is not clear. India being a fellow Commonwealth country with whom our country F shares diplomatic relations I see no reason why the Petitioner's side did not secure a copy from the Indian High Commission in Dar-es-Salaam of the present state of the law in India to prove their case.

... We have no evidence on the true present situation on how much Parliament in India has legislated G on this issue at present moment. The burden is on the Petitioner to prove that the 2nd Respondent is not a Tanzanian citizen beyond reasonable doubt. That burden has not been discharged to the satisfaction of the court.'

The book on the law in India, which the learned Trial Judge mentions in this part of his H judgment, is authored by H M Seorvai on `Constitutional Law of India'. We think that had the learned Trial Judge approached the issue of citizenship correctly and applied the law of Tanzania, he would have come to the same conclusion as we have done, that the I CCM candidate was not Tanzanian at the time of the election.

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The relevant law on the issue is the Citizenship Act 1961 Cap 512 read together with the A British Nationality Act, 1948. Under the scheme of the Citizenship Act, 1961, there are three main categories of Tanzanian citizenship, that is, citizenship by birth, citizenship by descent, and citizenship by registration as defined or provided under s 2 and 10 of the B Citizenship Act, 1961. Under s 10 a citizen by birth `means a person who is citizen of the United Republic--

(a) by virtue of section 3 of this Act.

(b) by virtue of the combined effect of ss (1) of s 1 of this Act and para 1 of the Fourth Schedule to C the Extension and Amendment of Laws (No 5) Decree, 1964; or

(c) by virtue of his birth in Zanzibar and the effect of para 2 of the Fourth Schedule to the Extension and Amendment of Laws (No 5) Decree, 1964.' D

Similarly under the same section, citizen by descent `means a person who is a citizen of the United Republic--

(a) by virtue of s 4 of this Act; or

(b) by virtue of the combined effect of ss (2) of s 1 of this Act or of s 4 of this Act as in force E immediately before the commencement of the Extension and Amendment of Laws (No 5) Decree, 1964, and of para 1 of the Fourth Schedule to the said Decree;

(c) by virtue of the combined effect of his being a Zanzibar subject by descent in accordance with F the former law of Zanzibar (and had that law remained in force until immediately before Union Day) and of para 2 of the Fourth Schedule to the said Decree.'

As to the provisions concerning the acquisition of citizenship by registration, these are to be found under s 2 of the Act read together with Part II of the Citizenship Ordinance, Cap 452. The position of the third appellant clearly does not fall within the category of G citizenship by registration or citizenship by descent. It falls within the category of citizenship by birth within the scope of ss (1) of s 1 of the Act, which states:

H `Every person who, having been born in Tanganyika is on the eight day of December, 1961, a citizen of the United Kingdom and Colonies or a British protected person shall become a citizen of Tanganyika on the ninth day of December, 1961:

Provided that a person shall not become a citizen of Tanganyika by virtue of this sub-section if neither I of his parents was born in Tanganyia'.

1996 TLR p192

NYALALI CJ

Undoubtedly on the facts of this case, this sub-section of s 1 has to be read together A with the provisions of s 6 of the Act which concerns dual citizenship. On the facts of this case the relevant part is ss (1) of s 6 as amended by Act 24 of 1970. It states:

B `Any person who, upon the attainment of the age of 18 years, is a citizen of the United Republic or was a citizen of the former Republic of Tanganyika and also is or was a citizen of some country other than the United Republic or the former Republic of Tanganyika shall, subject to the provisions of ss (7) of this section, cease to be a citizen of the United Republic upon the specified date unless he has C renounced his citizenship of that other country, taken the oath of allegiance and, in the case of a citizen by descent, made and registered such declaration of his intention concerning residence as may be prescribed by Parliament.'

It is apparent that there are three factors which determine citizenship by birth within the D scope of ss (1) of s 1 of the Act. These are firstly, being born in Tanganyika by 8 December 1961; secondly, being a citizen of the United Kingdom and Colonies or being a British protected person on 8 December 1961, and thirdly and finally having at least one parent who was born in Tanganyika. E

It follows therefore that the impression given in the decision of the High Court in the case of Abdallah Salim Ali Absalaam (5) to the effect that only one factor is required in determining

citizenship by birth under ss (1) of s 1 cannot be correct. In that case, Georges, CJ as he then was, is reported to have held: F

`Section 1(1) of the Citizenship Act, 1961 designates persons born in Tanganyika as citizens, "provided that person shall not be a citizen if neither of his parents was born in Tanganyika." this section clearly requires only that one parent have been born in Tanganyka ...' G

We are of the considered opinion that the wrong impression need not arise if one bears in mind that the factor of parentage appears in a proviso which qualifies a preceding statement in ss (1). The proceeding statement designates persons born in Tanganyika and who are citizens of the United Kingdom and Colonies or are British protected H persons on the 8 December 1961, as citizens of Tanganyika. Clearly the fact of having one parent born in Tanganyika is not sufficient to confer citizenship by birth within the scope of ss (1) of s 1 of the Act.

For purposes of clarity we need to point out here that citizenship of the United Kingdom and Colonies exists under the law of Tanzania only for the purpose of determining I citizenship by birth within

the scope of ss (1) of s 1 of the Act, and is not recognized as a parallel citizenship which A a citizen of Tanzania continued to have after 9 December 1961. It would seem that once citizenship of the United Kingdom and Colonies served its purpose of determining citizenship by birth for those born before 9 December 1961, it disappeared from their B lives. Bearing in mind that one of the objectives of the Citizenship Act 1961 is the exclusion of plurality or duality of citizenship, we are satisfied that this must be the correct interpretation of the law. The contrary interpretation leads to an absurdity in the sense that the vast majority of people born in Tanganyika before 9 December 1961 C would be construed to have continued with the colonial citizenship of the United Kingdom and colonies and subsequently forfeited their new citizenship of Tanganyika for failure to renounce their colonial citizenship under s 6 of the Act. We do not think that such absurdity was the intended effect of the Act.

Let us now turn to the specific position of the third appellant. There is no dispute D between the parties that he was born in Tanganyika in 1954 and, one of his parents, that is, his mother, was similarly born in 1926. The first question that has to be resolved is whether the third appellant was a citizen of the United Kingdom and Colonies or was a E British protected person at the time of his birth. The answer is to be found under the provisions of s 4 of the British Nationality Act, 1948 which states:

`Subject to the provisions of this section, every person born within the United Kingdom and Colonies F after the commencement of this Act shall be a citizen of the United Kingdom and Colonies by birth:

Provided that a person shall not be such a citizen by virtue of this section if at the time of his birth--

(a) his father possesses such immunity from suit and legal process as is accorded to an envoy of a foreign sovereign power accredited to His Majesty, and is not a citizen of the United G Kingdom and Colonies; or

(b) his father is an enemy alien and the birth occurs in a place then under occupation by the enemy.'

It seems to us that since Tanganyika was, as defined under s 32 of the British Nationality H Act, 1948 a colony of the United Kingdom at the time when the third appellant was born therein in 1954, he must have been a citizen by birth of the United Kingdom and Colonies. Undoubtedly that was the legal position concerning the vast majority of people I born in the colony known as Tanganyika before the 9 December 1961.

1996 TLR p194

NYALALI CJ

However, the third appellant's legal position was significantly different from that of the A vast majority of people. Unlike them, the third appellant was at the time of his birth not only a citizen of the United Kingdom and Colonies by virtue of the provisions of s 4 of the British Nationality Act, 1948, but he was also a citizen of India. This can be seen from B the particulars of his birth certificate which was produced in evidence at the trial in the High Court. The particulars show that both parents of the third appellant were of Indian Nationality at the time of his birth. We are satisfied that the term `nationality' as used for purposes of registration of births under the Births and Deaths Registration Ordinance, C Cap 108 connotes citizenship. We take judicial notice of the fact that at the time of the third appellant's birth in 1954, India had been an independent nation state for almost 7 years with its own citizens. We are satisfied that, according to the law of this country, the third appellant must be regarded as having acquired the nationality or citizenship of D both his parents at the time he was born, and that such nationality or citizenship is presumed to have continued until the time when under Tanzanian law he was required to choose between Tanzanian citizenship or Indian citizenship, unless such presumption is rebutted by credible evidence. In our considered opinion, the burden of E rebutting such a presumption lies with the person who seeks to rebut it. In the present case, it was for the third appellant to satisfy the trial High Court that his Indian citizenship ceased to exist before he was required under Tanzanian law to renounce it according to the provisions of ss (1) of s 6 read together with ss (7) of the Citizenship Act, 1961. F

We note that according to ss (6) of s 6 of the Citizenship Act as amended by Act No 24 of 1979, the specified date for a person like the third appellant who was still a minor on the 9 December, 1961, is the date of attaining the age of majority, which is 18 years. Sub-section (7) provides for parliamentary extension of the specified date wherever appropriate.

Since it is apparent from the record of the proceedings in the trial High Court that the third appellant produced no evidence to show that his Indian citizenship had ceased to exist at the time he attained the age of 18 years, that is, in 1972, and in the absence of his renunciation of such Indian citizenship in 1972, then, unless there was an extension granted by Parliament for the required renunciation, the third appellant must have automatically lost his Tanzanian

citizenship in 1972 that is, at the time he applied for and obtained his first Tanzanian Passport. As this court is not aware of any
1996 TLR p195
parliamentary extension for renunciation being granted to the third appellant under the A provisions of ss (7) of s 6 of the Citizenship Act, we are satisfied that the trial High Court ought not to have given the third appellant the benefit of doubt but should have found that he was not a Tanzanian citizen at the time of the by-election.
In conclusion, these then are the reasons which compelled us to make the findings we B did in our judgment delivered on 28th December 1994.
1996 TLR p195
C
[zRPz]ANNA KANUNGHA v ANDREA KANUNGHA 1996 TLR 195 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J
D

CIVIL APPEAL NO 6 OF 1995 E
9 March 1995
Flynote
Family Law - Divorce - Division of the matrimonial assets - Basis upon which division to be effected - Section 114(3) of the Law of Marriage Act No.5 of 1971. F
-Headnote
Subsequent to a divorce, the present Appellant applied to the Dodoma Urban Primary Court for the division of the matrimonial assets, which consisted of `130 head of cattle, 28 sheep, 8 goats, 6 donkeys, two houses of corrugated iron sheets and two thatched G houses'. She was awarded only one corrugated iron house. She now appeals to this Court against that award.
The trial court held that the animals were not liable for distribution since the Respondent had inherited them from his father before the marriage, and were thus the Respondent's personal property. H
Held:

(i) Personal property is liable for distribution in terms of Section 114(3) of the Law of Marriage Act when such property has been `substantially improved' during the marriage by the joint efforts of the spouses.

(ii) There was evidence to suggest that some cattle were purchased during the I subsistence of the marriage with the proceeds of crop sales.
1996 TLR p196
A (iii) Some heads of cattle had been jointly acquired by the spouses as a bride price following the marriage of their two daughters.

(iv) The Appellant is awarded 10 head of cattle, 2 goats and 6 sheep in addition to the trial court's award of the house.

(v) The trial court's decision is upheld, but varied to the aforementioned extent, and the appeal is allowed with costs. B

Case Information

Ordered accordingly.

[zJDz]Judgment

Mwalusanya J:

After a divorce case, the appellant Mrs Anna Kanungha applied at Dodoma Urban C Primary Court for the division of the matrimonial assets between her and her ex-husband the respondent Mr Andrea Kanungha. The matrimonial assets to be divided consisted of 130 head of cattle, 28 sheep, 8 goats, 6 donkeys, two houses of corrugated iron sheets and two thatched houses. The trial court awarded only one house of D corrugated iron sheets and she was denied the rest. She appealed to Dodoma District Court which quashed the proceedings allegedly because they were a nullity on the ground that the assessors did not give their opinions in writing before the judgment was written. She has now appealed to this court challenging the decisions of the two courts E below.

The learned resident magistrate was patently wrong. And I have to observe that this is not the first time the learned resident magistrate has committed such a gross misinterpretation as regards GN No 2 of 1988. The law as introduced by GN No 2 of 1988 is that after she closes the defendants case the trial magistrate should not record F the opinions of the assessors as had been the case before. All that the trial magistrate has to do, is to consult or confer with the assessors as to what they thought about the case, and this consultation does not have to be reduced to writing. After agreeing on the G decision, the trial magistrate writes a judgment which includes the views of the trial magistrate and the assessors. Then the trial magistrate and the two assessors sign that judgment. If one dissents, a dissenting judgment is written and signed by the one dissenting. So in this case the trial court properly complied with the law, as the judgment H is duly signed by the trial magistrate and both assessors.

Now was the trial court correct in dividing the matrimonial assets the way it did? The appellant has told this court that she is satisfied with the way the houses were divided. Her concern is about the heads of cattle of which she was deprived. There was no I dispute at the trial that the assets consisted of 130 head of cattle; 28 sheep, 8 goats and 6 donkeys. The trial court held that the said

cattle were not liable for distribution because they are the personal property of the A respondent which he had inherited from his father before he married the appellant.

The trial court was clearly wrong. There are three grounds for saying so. First because under s 114 (3) of the Law Marriage Act No 5 of 1971 such personal property is liable for B distribution so long as the same has been substantially improved during marriage by the joint efforts of the spouses. In the case at hand there can be doubt that the appellant had helped to improve the cattle by going to graze them in the bush (as is common with the Wagogo) and by cleaning the kraal. So she is entitled to a share. C

Secondly, there was evidence at the trial to the effect that some cattle were realised by buying after the spouses had sold their joint crops. Such contention was not seriously challenged, as respondent merely stated that he had inherited 30 head of cattle which D had reproduced. Even if the 30 head of cattle had reproduced, there was room to accept that some had been bought.

Thirdly, and which is more important is the fact that there was uncontroverted evidence adduced at the trial to the effect that some heads of cattle were jointly acquired by the spouses as bride price when their two daughters got married. It is said one daughter E was married for 20 head of cattle and 20 goats, while the other daughter was married for 18 head of cattle and 15 goats. So in all there were 38 head of cattle and 35 goats acquired through brideprice. When I enquired from the respondent about this revelation, he conceded that it was true. Therefore I am at a loss as to why the trial court held that F there was no joint heads of cattle liable for distribution. The trial court clearly erred.

Considering the fact that the spouses are now old, they being allegedly married in 1950, and considering the fact that respondent has some two other younger wives, with a number of children, I will give the appellant a lesser portion of the cattle. In the event I G award the appellant 10 head of cattle, two goats and six sheep. The award of a house given to the appellant by the trial court is endorsed.

In fine the judgment of the District Court is set aside. The decision of the trial court is H upheld but varied to the extent indicated above. The appeal is allowed with costs. Order accordingly.

1996 TLR p198

A

[zRPz]EX-PARTE LEONARD REED HARRISON AND KWIGEMA SAMSON GABBA 1996 TLR 198 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Bubeshi J

B

MISC CIVIL CAUSE NO 164 OF 1994

23 March, 1995

Flynote

Family Law - Adoption - One potential adoptive parent a foreign national residing in the Republic C - Requirements for valid adoption in such circumstances - Section 3(2) of the Adoption Ordinance, Cap.335.

Customary Law - Marriage by customary Sukuma law - Whether such constituting valid marriage D for the purposes of adoption - Section 43 of the Law of Marriage, 1971.

-Headnote

The Applicants seek an order of adoption in respect of the infant Anthony Hongera Gabba who was born of the Second Applicant and one Rogathe Kwayu. The Applicants have been living together for the past seven years since dowry was paid pursuant to E Sukuma customary law.

The First Applicant is a citizen of the United States of America and has resided in the Republic since 1971 on a 'Class A' permit.
A curator ad litem to the infant was appointed, who submitted a report to the Court in terms of which the proposed adoption was not recommended. F
Held:

(i) The Adoption Ordinance permits adoption orders when two spouses apply jointly for such an order.

(ii) To be recognised as husband and wife for the purposes of the Ordinance, the marriage must be registered pursuant to Section 43 of the Law of Marriage Act, 1971. G

(iii) The putative father's consent form should be duly signed.

(iv) The First Applicant should have supplied the Social Welfare Department with his residence permit, since no adoption order can be made in respect of any applicant not resident in the Territory.

H (v) The application is dismissed, but leave is granted to the Applicants to re-apply after having clarified the issues raised.

(vi) No order is made as to costs.

Case Information
Ordered accordingly.
[zJDz]Judgment
Bubeshi J: I
The applicants Mr Leonard Reed Harrison and Kwigema Samson
1996 TLR p199
BUBESHI J
Gabba filed an application by way of chamber summons for the order of adoption of one A Antony Hongera Gabba herein after to be called the infant. Supporting their applications is an affidavit deponed by Mr Leonard Reed Harrison.
The background to this petition is that the infant Antony Hongera Gabba was born of B Kwigema Samson Gabba and Rogather Kwayu of Dar es Salaam on 29 July 1979 at Geita. That Mr Leonard Reed Harrison and Kwigema Samson Gabba have been living together for the last seven years and that though not legally married dowry was paid in accordance with Sukuma customary law. That the putative father of the infant Antony C has consented to the said adoption and that the petitioners are keen to adopt the infant so that he may be taken abroad for further studies. The petitioner Mr Leonard Reed Harrison is a citizen of the United States of America but has been living in this country since 1971 under a `Class A' resident permit. D
Following this application, this Court appointed the Commissioner for Social Welfare to act as curator ad litem to the infant and the petition was so served on him.
On the day of the hearing of the petition, the Court invited Mrs Kyara from the social E welfare department, to submit her report on the matter in terms of rule 13 of the Rules of Court GN 1942 No 321. The report submitted and marked `A' had the following salient points:

-- that it was not possible to establish the petitioners marital status as no legal or F formal document to that effect was produced though it was contended that cohabitation was approved by Kwigemas parents under customary law.

-- that the consent by the putative father produced to the curator ad litem was not duly signed and efforts to clarify this anomaly proved futile as the putative father G was out of the country for further studies.

-- that Mr Leonard Reed Harrison is a USA Citizen but his residential status in this country could not be established though he has lived in Tanzania for the last 27 years ie, from 1971. H

-- that discussions with the infant Anthony revealed that the infant has not had time to discuss with his real father on the issue-the concern also echoed with the mother Kwigema.

All in all the curator ad litem was therefore not recommending the proposed adoption of I the infant to the petitioners.

1996 TLR p200

BUBESHI J

In reply thereto Mr Leonard Harrison Reed said as far as he knows he is a businessman A residing in this country under `Class A' Residence Permit. As to the marital Status, his customary law marriage to Kwigema was in accordance with Sukuma customary law.

Kwigema on her part did not have much to say except to emphasize their willingness in adopting the child. B

In accordance with s 3(2) of the Adoption Ordinance cap 335 an adoption order may be made on the application of two spouses authorising them jointly to adoption an infant. Before me is an application or petition issued jointly by Leonard Reed Harrison and C Kwigema Samson Gabba for the adoption of Anthony Hongora Gabba, the son of Kwigema Gabba.

The petitioners have been living in cohabitation for the last seven years and dowry was paid in accordance with Sukuma customary law. That may be so, but in order that those D two may be recognised as husband and wife (spouse) for the purpose of adoption, it is my considered view that their marriage has to be registered as per s 43 of the law of Marriage Act 1971. That proviso reads:

Section 43(4)

E `when a marriage is contracted in the presence of a registration officer ... according to customary law rites, it shall be the duty of the registration officer to take necessary steps to register the marriage with the district registrar ...'

and again under F

Section 43(5)

`when a marriage is contracted according to customary law rites and there is no registration officer present, it shall be the duty of the parties to apply for registration, within thirty days of the marriage, to the registrar....' G

Hence the petitioner's purported marriage under the Sukuma customary law rites should be registered according to the law so that they may be termed as spouses within the meaning of the adoption ordinance. H

As to the issue of consent by the putative father one Rogather Kwayu, it is unfortunate that the consent form sent to the social welfare department was not signed. I think it should be duly signed. The court's copy is dated 20 December 1994 and one wonders why the copy sent to the Social Welfare Department bears no date. I

Regarding the residential status of Mr Harrison. I think this is an

important issue. The petitioner Mr Leonard Reed Harrison has to satisfy the Social A Welfare Department of his residential status in this country by submitting to them the necessary permit from the Immigration Department. This is important as no adoption order shall be made in respect of any applicant who is not resident in Territory-Section 4(5) thereto of cap 335. In the final analysis, this application cannot succeed and it is B hereby dismissed. The parties are at liberty to reapply after having clarified the issues raised above.

I make no order as to costs. C

D

[zRPz]MUSSA HAMISI SHAH & TWO OTHERS v DAR ES SALAAM CITY COUNCIL 1996 TLR 201 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Bubeshi J

E

MISC CIVIL CAUSE NO 20 OF 1995

23 March, 1995

Flynote

Civil Practice and Procedure - Representative suits - Application for leave to file such a suit - F Before which court such application should be brought.

-Headnote

The Applicants applied for an order in this Court permitting them to institute proceedings G in the Resident Magistrate's court against the Respondent on behalf of more than 68 other co-applicants. The Applicants also sought an injunction restraining the Respondent from `demolishing, damaging, alienating or disposing' of the properties in the principal suit to be instituted.

Held: H

(i) The law allows representative suits, but any application for leave to bring a suit in this way should be entertained by the court that will hear the suit in due course.

(ii) It would be premature for this Court to grant the injunction sought before the main suit has been filed. I

(iii) Leave is granted to the Applicants to file the main suit, and the application succeeds to this extent only.

Case Information
Ordered accordingly. A
Case referred to:
1. Frank M Marealle v Paul Kyauka Njau [1982] TLR 32
Lugue, for the Applicants. B
Eustace, for the Respondent.
[zJDz]Judgment
Bebeshi J:
Mr Lugue, learned counsel filed an application under s 63(1) of the Magistrates Court Act 1984 and also under Order 1 Rule 8, and Order 437 Rule 1(b) and s 95 of Civil C Procedure Code 1966 seeking on behalf of the plaintiffs/applicants the following orders:
(a) that this court grant leave to the applicants to file the suit arising from unsurveyed land at the court of the resident magistrate D
(b) that this court grant leave to the applicants to file a representative suit on behalf of the other applicants
(c) that this court issue an interim injunction restraining the respondents from demolishing, damaging, alienating or disposing of the properties in the suit land E until the matters concerning the said land are adjudicated on merit by the court of law

This application is supported by the affidavit as deponed by one Faraji S Mziray on behalf of the other applicants. F
Appearing on behalf of the respondents of the city council was Mr Eustace learned counsel who submitted before me that he was not challenging the first prayer, that is, applying for leave to have this matter heard by the resident magistrate's court as the applicants had engaged the services of counsel. Mr Eustace however was challenging the second and third prayers. G
Mr Lugue learned counsel on the issue of representation submitted that since there were more that 68 applicants he though it prudent that the three applicants be allowed to represent the rest. In fact he said the law allows representative suits Order 1 Rule 8 of H the Civil Procedure Code 1966. To echo that Mr Faraji S Mziray deponed in his affidavit para two thereto, that the 68 interested persons have appointed Mussa Hamisi Shah, Feraji S Mziray and Lucas Japhet Kija to appear in court on their behalf.

Mr Eustace who was opposed to the prayer submitted that this issue should be I presented before the court that going to try the suit and not this court. I think Mr Eustace is correct. The law allows for
1996 TLR p203
representative suits but such application should be handled by the appropriate court that A will hear the suit, and since I am inclined to grant leave for this matter to be filed at the resident magistrate's court, it would be in order if this application is addressed to the competent court once a suit has been filed. B

Likewise on the third prayer. The court would not at this juncture grant the injunction prayed against the respondents. As I understand the current position is that counsel for applicants after being granted leave by this court will then proceed to file the suit at the resident magistrate's court. Once he has done so, it would therefore be open to him to C apply for the injunction or not. It would, in my view, be rather premature for counsel to ask this court to grant the injunction when the suit has not been filed. In that regard the authority cited before me of Frank Marealle v Paul Kyauka Njau (1) is not relevant here.

In the final analysis, the application succeeds to the extent that only the first prayer is D allowed. The second and third prayers are not allowed.

1996 TLR p203

E

[zRPz]LUJUNA SHUBI BALLONZI, SENIOR v REGISTERED TRUSTEES OF CHAMA CHA MAPINDUZI 1996 TLR 203 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Samatta JK

F

G

CIVIL CASE NO 214 OF 1992

May 9, 1995

Flynote

Civil Practice and Procedure - Locus standi - Law governing locus standi - Scope of locus standi H in public and private interest litigation

Civil Practice and Procedure - Law applicable - Applied common law - Power of the High Court to modify common law to suit local I

1996 TLR p204

conditions - Section 2(2) of the Judicature and Application of Laws Ordinance, Cap 453 A

Civil Practice and Procedure - Representative suits - Law and procedure in representative suits - Order I Rule 8 of the Civil Procedure Code, 1966

Administrative Law - Public Rights - Enforcement of public rights - Whether a private individual B may assert public rights by civil action

Constitutional Law - Judicial control of the executive - Management of public funds by the executive - Whether the executive is subject to judicial superintendance in the management of public funds C

-Headnote

The plaintiff claimed that during the era of the one-party state the ruling party, of which the defendants were its trustees, had acquired many properties through subventions from the government and compulsory contributons from millions of people, the majority of whom were, like the plaintiff, not members of the party. The funds so received as D subventions were misused or mismanaged leading to a huge debt burden upon Tanzanians. The plaintiff sought an order for the defendants to pay the said debt and a declaration that the defendants had no right

to the properties they had purportedly acquired. The defendants raised preliminary objections regarding, inter alia, E non-compliance with the law for representative suits and the justiciability of the claims. The court also considered the plaintiff's locus standi.

Held:

(i) Locus standi is governed by common law according to which a person bringing a matter to court should be able to show that his right or interest has been F breached or interfered with;

(ii) The High Court has the power to modify the applied common law so as to make it suit local conditions;

(iii) The rule of locus standi, in so far as it relates to human rights litigation, must be wide; but there is no basis or justification for widening it to a similar extent in a G private interest litigation as in this case;

(iv) Although the plaint does not expressly say so, it is plain that the plaintiff has purported to file the suit on behalf of himself and also on behalf of all Tanzanians who are not members of the ruling party; but as the suit has been filed without adopting the procedure laid down in Order I Rule 8 of the Civil H Procedure Code, 1966, for instituting representative suits, it is incompetent in law;

(v) Public rights can only be asserted in a civil action by the Attorney General as the guardian of the public interest and a private person can only bring such an action if he claims that the breach complained of constitutes an infringement of his private right or inflicts special damage to him in particular; I

(vi) The plaint in this case does not assert that the plaintiff has suffered

any special damage over and above other Tanzanians on account of the A defendants' alleged misconduct:

(vii) The management of public funds, like the management of the economy and foreign policy of the country, is the prerogative of the executive which, in the exercise of its powers in that field, is accountable to Parliament and does not fall under judicial superintendance or scrutiny; B

(viii) The remedy, if any, for any wrong allegedly committed in relation to funds received by the ruling party does not lie in the judicial field.

Case Information

The suit is struck out

Cases referred to: C

1. Re: I.G. Farbenindustrie AG Agreement [1943] 2 All ER 525
2. Gregory v Camden London Borough [1966] 2 All ER 196
3. Nyali Ltd v Attorney General [1955] 1 All ER 646
4. Attorney General (McWhirter) v Independent Broadcasting Authority [1973] 1 All ER 689 D
5. Gouriet v Union of Post Office Workers and Others [1977] 1 All ER 696
6. Attorney General v Westminster City Council [1924] All ER Rep 162

7. Deare v Attorney General [1835] IX & C Ex 197

8. Tricumdass Mulji and Another v Khimji Vullabhdass and Others [1892] 16 Bom 626 E

9. Lutifunnissa Bibi and Others v Nazirun Bibi [1885] 11 Cal 33

10. Council of Civil Service Unions and Others v Minister for the Civil Service [1985] 1 AC 374

Uzanda, Rutakyamirwa and Miss Mjasiri, for the defendants F

[zJDz]Judgment

Samatta JK:

One of the principal questions I have to decide in this matter is whether the plaintiff (now the respondent), Mr Lujuna Shubi Ballonzi, Senior, has locus standi or standing to bring the action which is now before this Court. In his plaint the respondent has sued the G registered trustees of Chama Cha Mapinduzi (hereinafter referred to by its acronym, CCM), praying for the following reliefs, among others:

(1) a declaration that CCM is not a political party; H

(2) an order that the defendants be dissolved and liquidated;

(3) a declaration that the defendants have no rights to movable and immovable properties which they have `purported' to acquire by using subventions from the Consolidated Fund;

(4) an order that the defendants pay all external debts amounting to not less than I seven billion dollars `incurred on behalf of Tanzanians'; and

1996 TLR p206

SAMATTA JK

(5) a permanent injunction restraining the defendants from using and/or alienating A properties in their possession.

In the plaint the respondent avers, inter alia:

The application was heard ex-parte because, although he was duly served with notice of hearing, the respondent, who was not legally represented, did not appear at the hearing.

`3. That the Defendants on or about the 5th day of February, 1977, took all assets of the B Tanganyika National African Union of Tanganyika and the Afro Shiraz Party of Zanzibar (`The Founder Parties').

4. That the Founder Parties were, without authority and mandate of the people, receiving subventions from the Consolidated Fund of Tanzania and compulsory contributions from people residing in Tanzania and others doing business with Tanzania and used those C moneys to acquire movable and immovable properties which were then registered in their respective names. Alternatively the founder parties should have used those funds prudently for the benefit of all Tanzanians.

5. The Defendants without the authority and mandate of the people of Tanzania constituted D themselves a state party on or about the 5th day of February, 1977, and continued to receive and use funds from the Consolidated Fund and compulsory contributions aforesaid in the same manner as the Founder Parties until the 30th day of June, 1992.

6. That the Defendants are continuing to coerce the business community to contribute to them E funds by using their position as a de facto Government. These funds can only be received for and on behalf of all Tanzanians.

7. That the Defendants, without the authority and mandate of Tanzanians, transferred to F themselves assets that they had acquired from the Founder Parties and registered them in their names and further acquired other properties from the subventions referred to in paragraph 5 herein and registered them in their names.

8. That the Defendants have no right to the properties referred to in para 7 herein because these G properties were purchased, acquired and/or constructed from funds which belonged to the peoples of Tanzania the overwhelming majority of whom are not members of the Defendants and therefore can hold such properties as trustees of the people of Tanzania and not as Trustees of CCM. H

9. The Plaintiff has never been a member of the Founder Parties and CCM but has contributed to the funding of the Consolidated Fund through payment of taxes and has been forced on several occasions to contribute towards CCM which moneys have found their way in the coffers of the Defendants. I

10. It is estimated that the Defendants have accumulated properties worth shillings seven hundred and eighty billion

(Shs.780,000,000,000/=) from state funds and have used one trillion shillings A (Shs.1,000,000,000,000/=) to activities unrelated to welfare of Tanzanians and have through mismanagements, outright theft and autocracy incurred an external debt of dollars seven billion (7,000,000,000) ostensibly on behalf of Tanzanians but without the authority and mandate of the people. B

11. That on the 1st day of July, 1992, the Defendants have in an autocratic manner constituted themselves as a political party and continue to cling on properties referred to in para 7 herein as theirs and have shown no intention to return them to the Government of the United Republic of Tanzania despite demand. C

12. ...

13. ...

14. For purposes of jurisdiction and court fees the value of the subject matter of the suit is in excess of four trillion shillings (Shs 4,000,000,000,000/=).' D

I have decided to quote the averments in the plaint in extenso because of the unusual character of the case. The defendants (now the applicants) have filed, under Order 6, Rule 16 and s 95 of the Civil Procedure Code (the Code) and s 2(2) of the Judicature E and Application of Laws Ordinance, Cap 453, an application in which they pray that the plaint be struck out on one or more of the following grounds:

(1) it discloses no reasonable cause of action; F

(2) it is scandalous, frivolous and vexatious; and

(3) it is an abuse of the process of the Court.

The application was heard ex-parte because, although he was duly served with notice of G hearing, the respondent, who was not legally represented, did not appear at the hearing.

Mr Uzanda (who was assisted by Ambassador Rutakyamirwa and Miss Mujasiri) strenuously attacked, from several fronts, the respondent's right in law to bring his action against the applicants. The learned advocate contended that the suit is incompetent for H not disclosing a cause of action and for being scandalous, frivolous and vexatious and an abuse of the process of this Court. He advanced four grounds in support of that contention. Those grounds may, without doing any injustice to the very skillful manner in I which the learned advocate put forward his arguments, be summarised as follows:

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A (1) The purported representative suit is incompetent because the mandatory provisions of Order I, rule 8 of the Code have not been complied with.

(2) The suit is incompetent in law because no cause of action on trust has been disclosed by the plaint.

B (3) Assuming that the respondent has (properly) pleaded a trust, the non-compliance with the provisions of s 67 of the Code is fatal to the suit.

(4) Since the case is based on averments that the applicants were receiving subventions from the Consolidated Fund, the suit should have been instituted C against the Government, and not against the applicants. In any case, the payment of those funds is not a justiciable issue or one which is subject to review by the courts.

In this country, locus standi is governed by the common law. According to that law, in D order to maintain proceedings successfully, a plaintiff or an applicant must show not only that the court has power to determine the issue but also that he is entitled to bring the matter before the court: see Halsbury's Laws of England, 4th ed, para 49 at p 52. E Courts do not have power to determine issues of general interest: see Re I G Farbenindustrie AG Agreement (1). They can only accord protection to interests which are regarded as being entitled to legal recognition. They will thus not make any determination of any issue that is academic, hypothetical, premature or dead. Because F a court of law is a court of justice and not an academy of law, to maintain an action before it a litigant must assert interference with or deprivation of, or threat of interference with or deprivation of, a right or interest which the law takes cognizance of. Since courts will protect only enforceable interests, nebulous or shadowy interests do not suffice for G the purpose of suing or making an application. Of course, provided the interest is recognised by law, the smallness of it is immaterial. It must also be distinctly understood, I think, that not every damage or loss can be the subject matter of court proceedings. The maxim damnum sine injuria esse potest (there may be damage or H loss inflicted without any act being done which the law deems an injury) is, without any shadow of doubt, part of the law of this country. An example of damnum absque injuria (loss without a wrongful act) is where a man sets up a shop in order to attract the customers of another shop. In Gregory v Camden London Borough (2), at 203G--H, I Paul J describes the common law principle in these terms:

A `There are many acts which cause loss which give no legal rights. Before one can come to a court of law, one must suffer an injuria as well as damnum; one must have suffered a legal wrong as well as an actual loss of money or amenity or something else'.

Under s 2(2) of the Judicature and Application of Laws Ordinance, Cap 453, this Court B has, of course, power to modify the common law so as to make it suit local conditions. Commenting on identical power conferred on the High Court of East Africa by the proviso to article 15 of the East Africa Order in Council (S R & O 1902 No 661) as amended by the East Africa Order in Council of 1911, in Nyali Ltd v Attorney-General (3), C Denning LJ said, at 653:

`The ... proviso says, however, that the common law is to apply "subject to such qualifications as local circumstances render necessary". This wise provision should, I think, be liberally construed. It is D a recognition that the common law cannot be applied in a foreign land without considerable qualification. Just as with an English oak, so with the English common law. You cannot transplant it to the African continent and expect it to retain the tough character which it has in England. It will flourish indeed but it needs careful tending. So with the common law. It has many principles of E manifest justice and good sense which can be applied with advantage to peoples of every race and colour all the world over: but it has also many refinements, subtleties and technicalities which are not suited to other folk. These off-shoots must be cut away. In these far off lands the people must have a law which they understand and which they will respect. The common law cannot fulfil this role except F with considerable qualifications. The task of making these qualifications is entrusted to the judges of these lands. It is a great task. I trust that they will not fail therein'.

In this country, is there any logical basis for modifying the common law rule of locus G standi? In India the Supreme Court has widened that rule. The new approach there is described by Mr Justice P N Baghwati, a former Chief Justice of that country, in his article Fundamental Rights in their Economic, Social and Cultural Context, published in Developing Human Rights Jurisprudence, vol 2 at 83, in the following terms: H

`... there was difficulty in enforcing the human rights of the poor and the disadvantaged, because they are not aware of their rights, they lack the capacity to assert those rights and they do not have the material resources to approach the courts in cases other than criminal. As a result a large range of I human rights remain

unenforced. We therefore developed the strategy of public interest litigation. We held in a seminal A decision that the ordinary rule of Anglo-Saxon jurisprudence is that an action can be brought only by a person to whom legal injury is caused. However, this rule must be departed from in the cases of poor and disadvantaged classes of people where legal injury is caused to a person or class of persons B who, by reason of poverty or disability or socially or economically disadvantaged position, cannot approach the courts for judicial redress. Thus we held that any member of the public, or social action groups acting bona fide, can approach the court seeking

judicial redress for the legal injury caused to C such person or class of persons, and that in such a case the court will not insist on a regular petition being filed by the public spirited individual or social action group espousing their cause and will readily respond-even if its jurisdiction is invoked merely by means of a letter addressed to it, as can happen in the case of habeas corpus actions. This widening of the rule of locus standi D introduced a new dimension in the judicial process and opened a new vista of a totally different kind of litigation for enforcing the basis human rights of poor and underprivileged sections of the community, and ensuring basis human rights dignity. Much of the human rights jurisprudence in India has been built up by the courts as a result of public interest litigation. The Courts have been E enforcing basic human rights of the deprived and vulnerable sections of the society in cases under trial as well as convicted prisoners, women in distress, children in jails and juvenile institutions, bonded and migrant workmen, unorganised labour "untouchables' and `scheduled tubes', landless agricultural labourers who are denied minimum wages or who are victims of faulty mechanisation, F slum and pavement dwellers and victims of extra-judicial executions and many more'.

If I may respectfully say so, there is, I think, some justification for extending the rule of locus standi in the direction taken by the Supreme Court of India. The provisions of s G 26(2) of the Constitution of the United Republic of Tanzania (the Constitution) do not seem to extend the rule to the degree done by the Supreme Court (of India). Bearing in mind the realities of our society, including the comparable educational backwardness and poverty of the majority of the people, I would respectfully agree with the following H observations by Mr Justice Kayode, a former justice of the Supreme Court of Nigeria, made in his article The Role of The Judge in Advancing Human Rights in Developing Human Rights Jurisprudence, vol 3, at 100:

I `It is submitted that the greatest excuse of the advocate of restraint in locus standi is that there would be floodgate if everyone is given

A hearing in (Human Rights cases). No one would advocate floodgate in ordinary cases, but as has been submitted earlier, human rights are special rights and special rights deserve special treatment. If floodgate it entails, let there be one, once it is a matter of human rights'. B

An ordinary person is likely to be more conversant with his private law rights than with his public law rights. By necessity the rule of locus standi insofar as it relates to human rights litigation, must be wide. I can see no warrant for making similar extension to the rule as far as private interest litigation is concerned. Since I do not think it would be right C to consider the respondent's suit as falling under the purview of human rights litigation, I proceed, being guided by, among others, the cases I have cited supra, to consider the merits or otherwise of Mr Uzanda's submissions.

Although in the plaint he does not expressly say so, it is as plain as a pikestaff that the D respondent has purported to file the suit not only on his own behalf but also on behalf of all Tanzanians who are not members of CCM. As already indicated, Mr Uzanda contends that the suit is incompetent in law on the ground that the provisions of Order I, Rule 8 of the Civil

Procedure Code have not been complied with. I have no doubt that E this contention is unanswerable. Rule 8 of Order 1 reads:

`8 - (1) Where there are numerous persons having the same interest in one suit, one or more of such persons may, with the permission of the court, sue or be sued, or may defend, in such suit, on F behalf of or for the benefit of all persons so interested. But the court shall in such case give, at the plaintiff's expense, notice of the institution of the suit to all such persons either by personal service or, where from the number of persons or any other cause such service is not reasonably practicable, by public advertisement, as the court in each case may direct. G

(2) Any person on whose behalf or for whose benefit a suit is instituted or defended under sub-rule (1) may apply to the court to be made a party to such suit'. H

This rule is almost in pari materia with Order I, Rule 8(1), (2) and (3) of the Civil Procedure Code of India. Commenting on the latter rule, the learned authors of Sir John Woodroffe and Ameer Ali's Code of Civil Procedure, 3rd ed, vol II, state as follows, at 1403: I

`The foundation of Order I, rule 8 CPC is to be found in a principle which transcends the personal or parochial nature of the combatants

who are arrayed as parties to the suit. It affects the rights of other persons not present before the A Court. Hence a duty is cast on the Court itself to follow meticulously the procedure prescribed by Order 1, rule 8. In view of the far reaching consequences of a decree passed in what is described in law as a representative suit, it is necessary that the relevant provisions must be treated as peremptory and mandatory'. B

And at 1405, the learned authors state as follows:

`A representative suit cannot be said to have been validly instituted unless and until the mandatory C provisions of Order 1 rule of the Civil Procedure Code are complied with. The provision contained in Order 1, rule 8, CPC ... is mandatory and not merely directory and is an essential precondition for the trial of the case as a representative suit. It is imperative that the two conditions provided in rule 8 of Order 1, should be complied with, namely, (1) the permission of the Court should be obtained and (2) D the Court should, at the expense of the plaintiffs, issue notice of the institution of the suit to all such persons either by personal service or where from the number of persons, or any other cause such service is not reasonably practicable, by public advertisement, as the Court may direct'. E

In my view, these two passages also accurately state our law. A person cannot seek to advance the claims of a group of persons without adopting the procedure laid down in Rule 8 of Order 1 of the Code. He cannot, as the respondent in the case now before me F has purported to do, institute a representative suit without first obtaining leave of the court to bring such suit. When such suit is instituted without that leave, it must struck out for being incompetent in law. Common interest litigation can be conducted only in accordance with the provisions of Order I, Rule 8 of the Code. As already remarked, G failure to comply with those mandatory provisions is fatal to any such suit or application. This is, in law, a sufficient ground for striking out the respondent's purported representative suit.

As was very rightly pointed out by Mr Uzanda in his submission, nowhere in his plaint H has the respondent asserted that, as a result of the applicants' alleged misconduct, he has suffered special damage over and above other Tanzanians or millions of Tanzanians who are not members of CCM. It is a principle of the law of this country that public rights can only be asserted in a civil action by the Attorney-General as the I guardian of the public interest. Except where statutory provisions provide otherwise, a private person can

only bring an action to restrain a threatened breach of the law if his claim is based on an A allegation that the threatened breach will constitute an infringement of his private right or will inflict special damage on him. What, as far as common law is concerned, are authorities for these propositions? To answer that question, I would cite Attorney-General (McWhirter) v Independent Broadcasting Authority (4) and Gouriet v B Union of Post Office Workers (5), two of the cases Mr Uzanda referred me to in the course of his very attractive submission. I do not consider it necessary to go into the facts of those cases. Both cases concerned the scope of the common law general C principle that a private person is not entitled in law to bring an action in his own name for the purpose of preventing or seeking compensation for public wrongs. In the former case, Lord Denning, MR said at 696:

D `If a government department or a public authority transgresses the law laid down by Parliament, or threatens to transgress it, can a member of the public come to the court and draw the matter to its attention? He may himself be injuriously affected by the breach. So may thousands of others like him. Is each and every one of them debarred from access to the courts? The law is clear that no one of E them can bring an action for damages, unless he has suffered special damage over and above everyone else. That was settled in 1535 in a case in the Year Books. That rule was laid down in order to avoid multiplicity of actions. The argument was put in this way: "If one of those injured were allowed to sue, a thousand might do so: and that was considered intolerable." Sir William Blackstone F in his commentaries said:

"... it would be unreasonable to multiply suits, by giving every man a separate right of action, for whom damnifies him in common only with the rest of his fellow-subjects".

But does this rule-which prevents anyone suing for damage-also prevent any member of the public G from seeking a declaration or an injunction? (These) are discretionary remedies, to which no one has a right, but which the court can grant if it thinks fit. The usual course, no doubt, is for the member of the public who is aggrieved to go to the Attorney-General and ask him to intervene-either ex officio H or by granting leave to use his name in a relator action. In all proper cases the Attorney General will, no doubt, give his leave. But it is a matter for his discretion.'

The Master of the Rolls then went on to consider whether the aggrieved member of the I public had any access to court if the Attorney-General unreasonably refused to give the leave sought.

He answered the question in the affirmative. In the course of giving that answer, he A made, if I may respectfully say so, very helpful observations on the role of the Attorney-General in this respect. He said, at 697:

`It is settled in our constitutional law that in matters which concern the public at large the B Attorney-General is the guardian of public interest. Although he is a member of the government of the day, it is his duty to represent the public interest with complete objectivity and detachment. He must act independently of any external pressure from whatever quarter it may come. As the guardian of the C public interest, the Attorney-General has a special duty in regard to the enforcement of the law.

His duty has been thus stated by members of this court who, each in his turn, had held the office of Attorney-General. In 1879 in Attorney-General v Great Eastern Railway Co at 500 Baggalay LJ said: D

"It is in the interest of the public that the law should in all respects be respected and observed, and if the law is transgressed or threatened to be transgressed ... it is the duty of the Attorney-General to take the necessary steps to enforce it, nor does it make any difference whether he sues ex officio, at the instance of relators". E

In 1924 Sir Ernest Pollock MR repeated those very words with approval: see Attorney-General v Westminster City Council (6), at 165. To these I would add the words of Lord Abinger CB who had himself been Attorney-General in Deare v Attorney-General F (7) at 208:

`... it has been the practice, which I hope never will be discontinued, for the officers of the Crown to throw no difficulty in the way of any proceeding for the purpose of bringing matters before a Court of G justice, where any real point of difficulty that requires judicial decision has occurred'.

In Gouriet's case supra, Lord Wilbereforce analysed the common law principle at great length. In the course of his judgment, he said, at 80: H

`It can be properly said to be a fundamental principle of English law that private rights can be asserted by individuals, but that public rights can only be asserted by the Attorney-General as representing the public. In terms of constitutional law, the rights of the public are vested in the Crown, I and the Attorney-General enforces them as an officer of the Crown, and just as the Attorney-General has in general

no power to interfere with the assertion of private rights, so in general no private person has the right A of representing the public in the assertion of public rights. If he tries to do so his action can be struck out.' (the emphasis is supplied)

And at 83b--c, his Lordship said: B

`That it is the exclusive right of the Attorney-General to represent the public interest, even where individuals might be interested in a larger view of the matter, is not technical, not procedural, not fictional. It is constitutional. I agree with Lord Westbury LC that it is also wise.' C

And at 83b--c, his Lordship said:

Do the provisions of s 26(2) of the Constitution entitle the respondent to bring the action now before this Court? I think not. In the first place, in his plaint the respondent has not complained of unconstitutionality or illegality. Although he is a lawyer by profession, he D has not cited any provision of the Constitution or any other law which has been violated by the applicants. This omission is, in my view, a matter of no surprise. The respondent could not have made such citations because under the Constitution and law then in force no unconstitutionality or illegality could arise in the applicants receiving from the E government the moneys they are said to have received on behalf of CCM, or in the government making those disbursements. I will be forgiven, I hope, for stating the obvious, namely, the constitutionality or legality of yesterday's actions cannot be tested by today's constitution or law. Secondly, it is my considered view that those provisions F were not intended to, and do not, abolish the application in Tanzania of the common law principle that a private person cannot assert rights belonging to the public. In my judgment, they merely reduce the scope of the rule. As far as public nuisance and public charity are concerned, two or more private persons may, under s 66 and 67 of the Code G respectively, bring a relator action. But to do so, those persons must obtain the consent of the Attorney-General: see Tricumdass Mulji and An v Khimji Vullabhdass and Others (8) and Lutifunnissa Bibi and Others v Nazirun Bibi (9). The provisions of those two sections are mandatory; suits to which the sections apply can only be instituted in H accordance with their provisions. It cannot be denied that the instant suit has not been instituted in compliance with the provisions of s 67. It may well be-and I stress that I say no more than that-that the trustees of a political party can, in law, seek from this Court I some of the reliefs the respondent has purported to pray for in the instant case.

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Lastly, I must deal with Mr Uzanda's submission concerning subventions which were A being made to the applicants. I am not disposed to think that all the issues raised by the respondent in his plaint are not justiciable. Some of those issues can, in my opinion, be properly examined in courts of law provided they are raised by a party having locus B standi. Whether CCM is a properly registered political party, for example, is plainly a question of law, whose answer must lie in the Constitution and the Political Parties Act. Nevertheless, I agree with the learned advocate's submission that the remedy, if any, for any wrong allegedly committed in relation to subventions received by the applicants C does not lie in the judicial field. In general, the management of public funds, like the management of the economy and foreign policy of the country, is the prerogative of the executive; it is not amenable to judicial process. In the exercise of its powers in that field the executive is accountable to parliament. It would be straining to the utmost the power D of judicial innovation to say that in the exercise of its powers in that area the executive falls under judicial superintendence or scrutiny. Generally speaking, judicial process is unsuitable for determining issues arising from the exercise of those powers. I find considerable support for that proposition in the observations made by Lord Diplock in E Council of Civil Service Unions and Others v Minister for the Civil Service (10), albeit in a somewhat different context. At 411 his Lordship said:

F `... The reasons for the decision-maker taking one course rather than another do not normally involve questions to which, if disputed, the judicial process is adapted to provide the right answer; by which I mean that the kind of evidence that is admissible under judicial procedures and the way in which it has to be adduced tend to exclude from the attention of the court competing policy considerations G which, if the executive discretion is to be wisely exercised, need to be weighed against one another-a balancing exercise which judges by their upbringing and experience are ill-qualified to perform.'

An assertion that the exercise of every governmental power is subject to judicial scrutiny would not be a sustainable proposition.

Judging from what he avers in his plaint, Mr Ballonzi, Senior, feels very strongly about the weaknesses of the political system which existed in this country before the multi-party system was adopted a few years ago, but the law regards him as lacking status to maintain the proceedings he has instituted before this Court. While he may deserve commendation for his vigilance in support

of democracy, the applicants have demonstrated to my satisfaction that his suit has A been properly framed and some of his causes of action are incontestably bad in law. The suit will not lie.

The application is granted and the suit is, under s 95 of the Civil Procedure Code, struck out. The applicants will have their costs. B

C

[zRPz]TANZANIA AIR SERVICES LIMITED v. MINISTER FOR LABOUR, ATTORNEY GENERAL and THE COMMISSIONER FOR LABOUR 1996 TLR 217 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Samatta JK

D

E

MISC CIVIL APPLICATION NO. 1 OF 1995

22 May, 1995

Flynote

Administrative Law -- Decision-making by public authorities -- Whether there is a duty to give reasons for decisions reached -- Section 26 of the Security of Employment Act 1964 F

Common Law -- Application of common law in Tanzania -- Power of the High Court to modify the common law applicable in Tanzania -- Section 2(2) of the Judicature and Application of Laws Ordinance, Cap 453 G

Administrative Law -- Exclusion of the jurisdiction of the courts by finality clauses -- Statute providing that the Minister's decision shall be final and conclusive -- Effect thereof -- Section 27(1)(a) of the Security of Employment Act 1964

-Headnote

The applicant company, aggrieved by the decision of the Labour Conciliation Board H re-instating an employee whose services had been terminated, referred the matter to the Minister for Labour under s 26 of the Security of Employment Act 1964, Cap 574. The Minister lawfully delegated his power to deal with the reference to the Commissioner for Labour who confirmed the decision of the Conciliation Board but gave no reasons at all I for reaching that decision. Section 27(1) of the Act stated that the decision of the Minister was final and conclusive. The

applicant sought an order of certiorari to quash that decision contending that the failure A to give reasons rendered the decision a nullity.

Held:

(i) Under common law there is no general requirement that public authorities should give reasons for their decisions but that position has been under criticism; B

(ii) The interests of justice call for the existence, in common law, of a general rule requiring public authorities to give reasons for their decisions;

(iii) Under s 2(2) of the Judicature and Application of Laws Ordinance, Cap 453, the High Court has power to vary the common law to make it suit local conditions; C the conditions of the people of Tanzania make it a fundamental requirement of fairplay and justice that parties should know at the end of the day why a particular decision has been taken;

(iv) The provision that the Minister's decision is final and conclusive does not mean that the decision cannot be reviewed by the High Court; indeed no appeal will lie D against such a decision but an aggrieved party may come to the High Court and ask for prerogative orders;

(v) Quashing the Labour Commissioner's decision and letting the matter lie there will be unsatisfactory as it will leave in force the decision of the Conciliation Board; an order of mandamus, therefore, can be issued by the High Court E invoking its inherent powers notwithstanding that there is no prayer for the same;

(vi) To ensure that justice is done and also it is seen to be done the order of mandamus should be directed to the Minister himself, not the Commissioner for Labour. F

Case Information

Application granted.

Cases referred to:

1. Breen v Amalgamated Engineering Union and Others [1972] 2 QB 175 G
2. R v Gaming Board for Great Britain, ex-parte Benaim and Khaida [1970] 2 All ER 528
3. Nyali Ltd v Attorney General [1955] 1 All ER 646
4. Healey v Ministry of Health [1954] 2 All ER 580
5. R v Medical Appeal Tribunal [1957] 1 All ER 796
6. Taylor v National Assistance Board [1957] 3 All ER 703 H
7. Tehrani and Another v Rostron [1972] 1 QB 187
8. Padfield v Minister of Agriculture, Fisheries and Food [1968] 1 All ER 694
9. Huth v Clarke [1890] 25 QBD 391

10. Gordon, Dadds & Co v Morris and Others [1945] 2 All ER 616 I

11. Manton v Brighton Corporation [1951] 2 All ER 101

1996 TLR p219

L. Kalunga, for the applicant A

P. Mwidunda, Senior State Attorney, for the respondents

[zJDz]Judgment

Samatta JK: In one of his well-known books, The Road to Justice, Sir Alfred Denning discusses the importance of a judge giving reasons for his decision. He states as follows, at 29: B

`The judge must give reasons for his decision: for by so doing, he gives proof that he has heard and considered the evidence and arguments that have been produced before him on each side: and also that he has not taken extraneous considerations into account. It is of course true that his decision C may be correct even though he should give no reasons for it or even give a wrong reason: but, in order that a trial should be fair, it is necessary, not only that a correct decision should be reached, but also that it should be seen to be based on reasons; and that can only be seen if the judge himself states his reasons. Furthermore if his reasons are at fault, then they afford a basis on which the party D aggrieved by his decision can appeal to a higher court. No judge is infallible, and every system of justice must provide for an appeal to a higher court to correct the errors of the judge below. The cry of Paul "I appeal unto Caesar" represents a deep-seated human response. But no appeal can properly be determined unless the appellate court knows the reasons for the decision of the lower court. For E that purpose, if for no other, the judge who tries the case must give his reasons.'

In the application now before me I have to determine whether in making his decision on a F reference to the Minister for Labour (the Minister) under s 26 of the Security Employment Act 1964, Cap 574 (the Act), the Labour Commissioner (the Commissioner), who exercises powers delegated to him by the Minister under s 44, is under obligation in law to give reasons. The application, by way of chamber summons, G is for an order of certiorari to bring up and quash the Labour Commissioner's decision by which he confirmed a decision reached by the Conciliation Board of Dar es Salaam that the respondent, whose services with his employer, the applicant company, were terminated, be re-instated. The reference to the Minister consisted of a two-page H document in which the Board's decision was strenuously attacked. The Commissioner's decision, which was communicated to the applicant company on Form 8, was couched, when translated, in the following words: `In accordance with s 26(2) of the security of Employment Act, 1964, I confirm the decision of the conciliation Board. The employee I should be re-instated'. Not a single reason was given for this decision. Section 27(1)

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of the Act makes a decision of the Minister under s 26 final and conclusive. The A subsection reads as follows:

`27.--(1) The decision of the Minister on a reference to him under s 26, and, subject to any decision B on a reference to the Minister therefrom, the decision of a Board on a reference to it under this Part--

(a) shall be final and conclusive; and

(b) shall be binding on the parties to the reference, and the relationship between the parties in consequence of the matters in respect of which the reference was made shall be determined accordingly; and C

(c) may be enforced in any court of competent jurisdiction as if it were a decree'.

Mr Kalunga, for the applicant company, strenuously attacked the Commissioner's D decision. He contended that the failure by the Commissioner to give reasons for the decision makes it a nullity. According to the learned advocate, although in the past the decision-maker had no duty under the law to give reasons for his decision, the trend in some common law jurisdictions now is to establish a right to reasons. He went on to E submit that, to prevent decisions based on caprice or mala fide, a right to reasons should be recognised. Mr Mwidunda, Senior State Attorney, representing all the three respondents, opposed the application. Quite rightly, he drew my attention to the fact that there is no provision in the Act imposing a duty on the Minister or Commissioner to give F reasons for their decisions made under s 26 of the Act. According to the learned Senior State Attorney, instead of bringing the present application the applicant should have sought from the Commissioner reasons for his decision. Mr Mwidunda urged me to dismiss the application. G

What is the law on this matter? There is, under the common law, no general requirement that public authorities should give reasons for their decisions: see Breen v Amalgamated Engineering Union and Others (1), 190--191; R v Gaming Board for Great Britain Ex p Benaim and Khaida (2) In the former case, Lord Denning MR, posed and H proceeded to answer the question whether a statutory or domestic body is bound in law to give reasons for its decision. He said, at pp 190--191:

`... ought such a body, statutory or domestic, to give reasons for its decision ... ? Not always, but I sometimes. It all depends on what is fair in the circumstances'.

SAMATTA JK

The absence in common law of a general rule requiring a decision-maker to give A reasons for his decision has been criticized by Professor H W R Wade in his book Administrative Law, 6th ed at 548 where he states as follows:

B `Unless the citizen can discover the reasoning behind the decision, he may be unable to tell whether it is reviewable or not, and so he may be deprived of the protection of the law. A right to reasons is therefore an indispensable part of a sound system of judicial review. Natural justice may provide the best rubric for it, since the giving of reasons is required by the ordinary man's sense of justice. It is C also a healthy discipline for all who exercise power over others. "No single factor has inhibited the development of English administrative law as seriously as the absence of any general obligation upon public authorities to give reasons for their decisions". ' D

And at 934 of the same book, the learned author states:

`Reasoned decisions are not only vital for the purpose of showing the citizen that he is receiving justice: they are also a valuable discipline for the tribunal itself ... [F]or decisions generally a statement of reasons is one of the essentials of justice.' E

The importance of giving reasons for a decision is also discussed by Geoffrey A Flick in his book Natural Justice, Principles and Practical Application in which, at 87--88, he says: F

`... First, the requirement of a reasoned opinion provides considerable assurance that the decision will be better as a result of its being properly thought out. Second, reasons will enable a person who has a right of appeal to determine whether he has good grounds for an appeal and will inform him of the case he will have to meet if he does decide to appeal. In this regard, if an administrative G determination is not the result of a unanimous votes of the decision makers, the minority opinion may be of considerable value to an unsuccessful party.... Third, reasons will make a tribunal more amenable to the supervisory jurisdiction of the courts and will ensure that a tribunal is acting within its powers. H

That is to say, reasons will inform a person why a decision has been made and will make manifest any errors of law. Fourth, reasoned opinions will encourage public confidence in the administrative process. As was noted in a leading English case, even though a decision may be perfectly correct, if a party was not given reasons he "was left with the real grievance that he was not told why the I decision had been" (In re Poyser and Mills' Arbitration [1964] 2QB

478). The exposure to public scrutiny and criticism is healthy.... Fifth, reasons act as a check on the A exercise of discretion and expertise and will ensure that a tribunal was performed its functions of considering relevant factors (Davies v Price [1958] 1WLR 434), and will prevent arbitrary action: Donaldson v Board of Education of North Wildwood 320 A 2d 857 [1974]. Reasoned opinions also B provide additional guidance to those who advise parties as to their future conduct ...'

I would add that, insofar as natural persons are concerned, giving reasons for a decision constitutes a recognition that the parties are rational beings. C

Should I, in determining the instant application, apply the common law as it now stands or should I apply it after modifying it? This Court has, under s 2(2) of the Judicature and Application of Laws Ordinance, Cap 453, power to vary that law so as to make it suit D local conditions. Should I use that power in this matter? I think I should. It seems to me that the interests of justice call for the existence, in common law, of a general rule making it mandatory in matters of importance for public authorities, a term I use to include statutory and domestic bodies, to give reasons for their decisions. But what are E matters of importance? It is neither desirable nor possible to define that term, but certainly it should be taken to include all matters in which the liberty, livelihood or reputation of the individual is concerned or in which proprietary or pecuniary rights or F interests are at stake. In any other situation the decision-maker should be bound to give reasons only if he is requested by a party to do so. In reaching the view that in this branch of the common law variation is necessary I have been greatly encouraged by the memorable words of Denning LJ, in Nyali Ltd v Attorney-General (3) Discussing the G proviso to article 15 of the East Africa Order in Council, 1902, as amended by the East Africa Order in Council of 1911, which conferred similar power on the High Court of East Africa to modify the common law, the learned Lord Justice said, at 653: H

`The ... proviso says, however, that the common law is to apply "subject to such qualifications as local circumstances render necessary". This wise provision should, I think, be liberally construed. It is a recognition that the common law cannot be applied in a foreign land without considerable qualification. Just as with an English oak, so with the English common law. You cannot transplant it I to the African continent and expect it to retain the tough

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character which it has in England. It will flourish indeed but it needs careful tending. So with the A common law. It has many principles of manifest justice and good sense which can be applied with advantage to peoples of every race and colour all the world over: but it has many refinements, which are not suited to other folk. These off-shoots must be cut away. In these far off lands the people must B have a law which they understand and which they will respect. The common law cannot fulfil this role except with considerable qualifications. The task of making these qualifications is entrusted to the judges of these lands. It is a great task. I trust that they will not fail therein.' C

Some people may argue that varying the common law in the manner I have indicated would result in placing more burden on the already busy decision-makers. This is an attractive argument, but I think Geoffrey A Flick's counter-argument in his book, cited supra, outweighs that argument. At p 89, the learned author states: D

`At least two arguments have been advanced against the giving of reasons. First, the giving of reasons would impose additional administrative burden and might well be an undue drain on the resources of an agency ... Such burdens may even result in the giving of canned reasons. Second, E reasons may hinder the manner in which a discretion is exercised and it may be though that the exercise of some discretion should be unreviewable by the courts. But considerations of administrative expediency should not mitigate principles of fairness and few, if any, discretion should be unreviewable.' F

In my considered opinion, it is a matter beyond rational controversy that, to borrow the language of the learned author in the book just cited, fundamental requirement of fair play requires that parties should know at the end of the day why a particular decision has G been taken. I think it is intolerable in a democratic society that the law should allow a decision-maker to whom an appeal or reference is made to make his decision without giving reasons why he has reached that decision. `The giving of reasons', said Lord Denning MR in Breen's case supra (at 191), `is one of the fundamentals of good H administration'. Bearing in mind the vast differences which exist between our people and those of England in both social and cultural fields and especially their knowledge of, and attitudes towards, decision-making public bodies, and taking into consideration the comparable educational backwardness of the majority of our people, I think it is in the I interests of justice and fair play that

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the common law relating to the giving of reasons for decisions should be qualified in the A manner I have endeavoured to indicate. In my considered opinion, a duty to give reasons and a

right to them should be recognised by our law and treated as being of decisive importance in administrative justice. Although a decision of the Minister or B Commissioner under s 26 of the Act is, according s 27(1), cited supra, final and conclusive, that does not mean the decision is not subject to review by courts. That remedy is not excluded by those or similar words: see Healey v Ministry of Health (4); R v Medical Appeal Tribunal Ex parte (5); Taylor v National Assistance Board (6), and C Tehrani and Another v Rostron (7). No appeal will lie against decisions protected by such words or phrases, but an aggrieved party may come to this Court and ask for prerogative orders. Nullity of a decision is not protected by words `final' or `conclusive'. It follows, as day follows night, that the decision which the applicant company has D complained against in the instant proceedings falls under this Court's surveillance. It should, perhaps, also be pointed out that neither the failure nor the refusal of a decision-maker to give reasons for his decision is a sufficient exclusion of the Court's surveillance: see Padfield v Minister of Agriculture, Fisheries and Food (8). E

I have sufficiently demonstrated, I hope, why I am of the opinion that the Commissioner's failure to give reasons for his impugned decision is a serious irregularity which makes that decision a nullity in law. An order for certiorari, like other prerogative orders, is a discretionary remedy. In my considered opinion, every factor in this matter speaks for F the discretion being exercised in favour of the applicant company. Mr Mwidunda submitted that certiorari cannot be used as an appeal. I agree. But it is a rule of common law that where a determination by a tribunal has been quashed by certiorari, the court G may, in its discretion, refrain from awarding a mandamus to direct the tribunal to redetermine the matter if satisfied that the tribunal will duly observe the law upon a rehearing, notwithstanding that the court could have effectively enforced an order of mandamus: see Halsbury's Laws of England, vol I, para 125 at 135. Should I invoke that H discretion and confine myself to quashing the Commissioner's decision or should I, notwithstanding that there is no such prayer in the application, make an order of mandamus directing redetermination of the reference? I confess that this question has exercised my mind quite considerably, but in the end I have reached a clear opinion on it. I Quashing the Commissioner's decision and letting the matter lie there will be unsatisfactory to the

applicant company as the decision of the Conciliation Board complained against will still A be in force. It seems to me, having given the matter careful attention, that an order of mandamus should be made, but it must be directed to the Minister himself and not the Commissioner. I am, of course, aware that by Govt Notice No 283 of 1971 the Minister B has, in terms of s 44 of the Act, delegated the functions imposed and the powers conferred upon him to hear and decide refences to the Commissioner. It is my view that that delegation does not make it legally impossible for this Court to make an order of mandamus directing the Minister to determine the applicant company's reference. The C law is that delegation does not imply a parting with powers by the person who grants the delegation; see Huth v Clarke (9); Gordon, Dadds & Co v

Morris and Others (10); and Manton v Brighton Corporation (11). In Huth's case supra Lord Coleridge CJ said at 394--395: D

`But delegation does not imply a denudation of power and authority.... The word "delegation" implies that powers are committed to another person or body which are as a rule always subject to resumption by the power delegating, and many examples of this might be given. Unless, therefore, it E is controlled by statute, the delegating power can at any time resume its authority.'

And at the latter page, Wills J, said, among other things:

`Delegation, as the word is generally used, does not imply a parting with powers by the person who F grants the delegation, but points rather to the conferring of an authority to do things which otherwise that person would have to do himself. The best illustration of the use of the word is afforded by the maxim, Delegates non protest delegate, as to the meaning of which it is significant that it is dealt with in Broom's Legal Maxims under the law of contracts: it is never used by the legal G writers, so far as I am aware, as implying that the delegating person parts with his power in such a manner as to denude himself of his rights.'

While I do not case any aspersions upon the ability of the Commissioner to deal with the H reference with an impartial mind, I feel that, for justice not only to be done, but also to be seen to be done, the reference should now be determined by someone else, the Minister himself. I entertain no doubt that I have inherent power to make the order of I mandamus notwithstanding that there is no prayer for it.

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Before parting with this application, I should like to make it perfectly clear that throughout A this ruling I have assumed, without deciding, that the conferring of adjudicatory powers upon the Minister does not violate the Constitution of the United Republic.

For the reasons I have given, I grant the application for order of certiorari and hereby B quash the Commissioner's decision confirming the decision of the Conciliation Board. The Minister for Labour, the first respondent, is hereby directed to personally determine the applicant company's reference in accordance with law as laid down in this ruling. There will be an order for costs against the respondents. C

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D

[zRPz]BASIL MASARE v PETRO MICHAEL 1996 TLR 226 (HC)

Court High Court of Tanzania - Arusha

Judge Mroso J

E

CIVIL APPEAL NO. 30 OF 1994

27 June, 1995 F

Flynote

Land Law - Land cultivated in common - Shamba - ownership of.

Civil Practice and Procedure - Appeal - Legislature's various use of the words `petition' and `memorandum' - Whether significant difference when referring to grounds of appeal to a higher G court - Section 25(3) of the Magistrates' Courts Act, 1984, and the Civil and Criminal Procedure Codes of 1966 and 1985 respectively.

-Headnote

The Respondent brought an action in the Primary Court at Maguga to recover about two acres of land which the Appellant had allegedly wrongfully expropriated in 1990. The Respondent failed in that action and duly appealed successfully to the District Court. It found that the parties had cultivated the disputed shamba in common until 1977 when the arrangement between them ceased and `the land remained the property of the Appellant'.

It is against the District Court's allowing the appeal that the Appellant appeals to this Court.

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Held: A

(i) The trial court, which visited the disputed shamba and found that it belonged to the Appellant, was correct in so finding and there were no valid reasons upon which the District Court could have reversed the trial court's decision.

(ii) If an appellant used the word `memorandum' instead of `petition' in connection B with his grounds of appeal in a case originating in the primary court, that alone cannot render the appeal incompetent since that would be `making a mountain out of a mouse mound'.

(iii) The appeal is allowed with costs, and the trial court's decision is restored. C

Case Information

Ordered accordingly.

Cases referred to:

1. Naigise Likimbalunye v Naibele Loibuke Civil Appeal No 65 of 1993 (unreported) D

[zJDz]Judgment

Mroso J:

The appellant was the successful party in the Primary Court at Magugu but lost when the respondent appealed against that decision to the District Court. Aggrieved by the E loss of victory, he has appealed to this court to have the decision of the Primary Court restored.

The respondent had brought action in the Primary Court to recover about two acres of land which allegedly the appellant had wrongfully expropriated in 1990. The respondent's evidence before the trial court was that the appellant had invited him to cultivate the F disputed shamba in common and that they did so for two years. His witness Nyerei Mkuyu did not support the respondent on the contention that initially-presumably in 1974-the shamba was cultivated in common between the appellant and the respondent. His evidence was that he had been seeking the respondent cultivate the disputed G shamba between 1974 and 1990.

On the other hand, the appellant said in his evidence that he started to cultivate the shamba in dispute from 1974 and in 1976 he helped the respondent to acquire a piece of land to his north and each of them developed their respective shambas on his own. In H 1984 while he was away the respondent allegedly cultivated the appellant's shamba without his consent. The appellant

could not confront the respondent until in 1989 because he was ill. The appellant was supported in his evidence by Siriri John and I Stephano Myombo. The trial Primary Court visited the locus inquo and after

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MROSO J

considering the available evidence found that the disputed shamba belonged to the A appellant. The first appellate court reversed the decision of the trial court on the basis that the parties had cultivated the disputed shamba in common until 1977 when the arrangement ceased and `The land remained the property of the appellant'. Further, that the B respondent (then appellant) has a house on the disputed shamba and lives in it.

It is apparent that the first appellate court misconstrued the evidence. The appellant never conceded that he cultivated the disputed shamba in common with the respondent. C Indeed, none of the witnesses of the respondent or of the appellant ever said the shamba was cultivated by the parties in common. Furthermore, the house which the first appellate court referred to is not in fact on the disputed shamba, as the sketch map drawn by the trial court clearly shows the house is on a shamba of the respondent over D which there is no dispute. It follows that there were no valid reasons for the first appellate court to reverse the decision of the trial court.

The respondent filed in this court a memorandum in reply to the appellant's appeal. One of the grounds against the appeal is that the ground of appeal were E entitled--`Memorandum of Appeal', instead of `Petition of Appeal'. It has been argued by the respondent that, for that reason, the appellant's appeal is incompetent. He cited a decision of this court (Munuo J) -- Naigise Likimbalunye v Naibele Loibuke (1) in which it was held that grounds of appeal in a case originating in the primary court which bear a F heading `Memorandum of Appeal' instead of the words `Petition of Appeal', which words are found in s 25(3) of the Magistrates' Courts Act, 1984, is incompetent and must be struck out.

With due respect to my colleague, I am unable to agree. I am aware that the Magistrates' G Courts Act, 1984 uses the words `Petition of Appeal' rather than `Memorandum of Appeal' when referring to grounds of appeal in a case originating in the primary court. The Civil Procedure Code, 1966 on the other hand uses the words `Memorandum of Appeal' when referring to grounds of appeal in a case originating from the District Court H or the Court of Resident Magistrate. The Criminal Procedure Code, 1985 uses the words `petition of appeal' when referring to grounds of appeal in a case originating in the District Court or the Court of Resident Magistrate. The Tanzania Court of Appeal Rules uses the words `Memorandum of Appeal' regarding the grounds of appeal in both I criminal and civil appeals to the Court of Appeal of Tanzania.

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What substantive distinction can one make from the use of the words `petition' or A `memorandum' when referring to grounds of appeal to a higher court? I must confess, I can see no such distinction although I would say that it would be preferable if an intending appellant uses the word adopted by the legislature for the relevant type of B appeal. In my view, if an appellant uses the word `memorandum' instead of the word `petition' in connection with his

grounds of appeal in a case originating in the primary court, that alone cannot render the appeal incompetent. That would be making a mountain out of a mouse mound unnecessarily. C
The second objection to the appeal is that the grounds of appeal are not accompanied by a copy of the judgment appealed against. This grounds of appeal are in fact accompanied by an irrelevant copy of judgment. That was careless of the appellant but it does not render the appeal incompetent because the law, section 25 of the Magistrates' D Courts Act, 1984, makes not requirement for the petition of appeal to be accompanied by a copy of the judgment or even of the decree appealed against.
For the reasons already given, the appeal is allowed. The decision of the first appellate court is quashed and set aside. The decision of the trial primary court is restored. The E appellant to get his costs.
1996 TLR p229
F
[zRPz]MWALIMU PAUL JOHN MHOZYA v ATTORNEY GENERAL (No. 2) 1996 TLR 229 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Samatta JK
G

CIVIL CASE No. 206 OF 1993
July 27, 1995 H
Flynote
Civil Practice and Procedure - No case to answer - Standard of proof upon a submission of `No Case to Answer' in a civil case - Standard of proof in civil and criminal cases distinguished
Civil Practice and Procedure - No Case to Answer - Dismissal of suit on the basis of a I submission of `No Case to Answer' - Test to be applied by the Court in reaching decision
1996 TLR p230
-Headnote
The plaintiff sought from the High Court the following orders of declaration: (a) that the A Constitution of the United Republic of Tanzania had been violated by Zanzibar joining the Organisation of Islamic Conference (the 'OIC'); that President Ali Hassan Mwinyi of the United Republic of Tanzania was guilty of permitting or enabling the said violation to take place; and (c) that President Ali Hassan Mwinyi's continued exercise of presidential B powers was unconstitutional and a potential danger to the country and its citizens. At the close of the plaintiff's case, counsel for the defendant submitted that there was no case to answer and invited the court to dismiss the case; he chose to call no evidence:
Held:
C (i) In a civil case a defendant can, at the close of the plaintiff's case, submit that there is no case to answer, and a submission of no case to answer in a civil case stands on the same

footing as a submission of no case to answer in a criminal case, save that there is a difference in the standard of proof;

D (ii) When dismissal of the plaintiff's case on the basis that no case has been made out is prayed for, the court should not ask itself whether the evidence adduced by the plaintiff establishes what would finally be required to be established, but whether there is evidence upon which a court, applying its mind reasonably to such evidence, could or might (not should or ought to) find for the plaintiff;

E (iii) A submission of no case to answer cannot be upheld if there is sufficient evidence on record upon which a court might make a reasonable mistake and enter judgment for the plaintiff;

(iv) The test to be applied at the close of the defendant's case is `what ought a reasonable court to do', while the test to be applied in determining a submission of no case to answer is `what might a reasonable court do'; F

(v) As the claim that Zanzibar joined the OIC is not admitted by the defendant, the burden is on the plaintiff to establish that fact and he has not succeeded to do that; the exhibits he has tendered in court only show the Government's efforts to find out whether Zanzibar joining the OIC would be constitutional; G

(vi) The general belief among members of the public that Zanzibar had joined the OIC is not a basis for holding that the plaintiff had discharged his burden in this case;

(vii) No admissible evidence has been given to show the role which the President played in Zanzibar joining the OIC; the evidence of radio and newspaper reports H brought by the plaintiff is hearsay and inadmissible under s 62 of the Evidence Act, 1967.

Case Information

Suit dismissed with costs.

Cases referred to:

I 1. Daikin Air Conditioning (E.A.) Ltd v Harvard University [1996] TLR 1

SAMATTA JK

A 2. Supreme Service Station (1969) (Pvt) Ltd v Fox and Goodridge (Pvt) Ltd, 1971 (1) RLR 1

The appelant appeared in person.

P. Mwidunda, for the respondent.

[zJDz]Judgment

Samatta JK: B

In this matter the plaintiff seeks various reliefs including the following declarations:

1. The Constitution of the United Republic of Tanzania (the Constitution) was violated by Zanzibar joining an organisation known as the Organisation of C Islamic Conference (OIC);

2. His Excellency Ali Hassan Mwinyi, the President of the United Republic, is guilty of permitting or enabling that violation to take place and is, therefore, personally answerable for the violation; and D

3. His Excellency Ali Hassan Mwinyi's continued exercise of presidential powers is unconstitutional as well as a potential danger to the well-being of the United Republic and its citizens.

At the close of the plaintiff's case, Mr Mwidunda, counsel for the respondent, submitted E that the respondent had no case to answer, and invited me to dismiss the suit. He elected to call no evidence.

The plaintiff's pleading is in a form of plaint. It seemed to me that the matter should have been brought by way of a petition but, bearing in mind that the plaintiff was unrepresented, I was not inclined to drive him off the judgment seat on that ground. F Accordingly, I allowed him to prosecute the case as filed. Only one witness gave evidence-the plaintiff himself. His evidence can, I think, be summarised as follows. He is a teacher by profession, teaching at Kibasila Secondary School. He has a Master's Degree in Physics. He told the court that sometime in 1992 he learnt through the press G that Zanzibar had joined the OIC. He knows as a fact that later President Mwinyi announced to the nation on Radio Tanzania that Zanzibar had joined the OIC and that she had done so in her own economic interests. The plaintiff then produced, without any objection from Mr Mwidunda, three letters: one from the then Attorney-General to the H Minister for Foreign Affairs and International Co-operation (Exh P1); the second is a letter from the Minister for Foreign Affairs and International Co-operation to the Attorney General (Exh P2), responding to Exh P1; and the third one is a letter from the I Attorney-General to the Prime Minister and first Vice-President (Exh P3). In view of the importance of their con-

tents in determining the issues before me, I propose, at the risk of making this ruling A unduly long, to quote them in extenso.

All the three letters are in Swahili. Exh P1 reads as follows:

`Ndugu Ahmed Hassan Diria (Mb)
Waziri wa Mambo ya Nje na B
Ushirikiano wa Kimataifa,
DAR ES SALAAM
KUH: MAOMBI YA ZANZIBAR KUJIUNGA
NA UMOJA WA ORGANISATION OF C
ISLAMIC CONFERENCE

Zanzibar imewasilisha kwenye Chama (CCM) maombi yake ya kutaka kujiunga na Umoja uitwao-the Organisation of Islamic Conference. Nimetakiwa na Ofisi ya Waziri Mkuu nitoe ushauri juu ya ombi hilo.

2. Kwa vile suala la Mambo ya Nje ya Ushirikiano wa Kimataifa ni suala la Muungano ambalo D unasimamia, nitashukuru kama utanipatia maoni ya Wizara yake juu ya ombi hilo. Natakiwa nitoe ushaur huo haraka ili hatimaye uamuzi ufanywe.

(Signed)
D Z Lubuva E
MWANASHERIA MKUU WA SERIKALI'

Exh P2 is in following terms:

`Nd D Z Lubuva, Mb,

Mwanasheria Mkuu wa Serikali,

DAR ES SALAAM F

KUH: MAOMBI YA ZANZIBAR KUJIUNGA NA

UMOJA WA ORGANIZATION OF THE

ISLAMIC CONFERENCE

Kutokana na waraka wako wenye somo lililotajwa hapo juu uliopelekwa CCM, uchambuzi wa G muundo wa chombo hicho unaonekana wazi kuwa ulipoanza ulikuwa na misimamo yenye maana ya kujikinga kiuchumi na kisiasa.

Wanachama wa mwanzo waanzilishi walikuwa Pakistan na Kingdom of Saudi Arabia. Hizo ni nchi zenye katiba ambayo ni wazi kabisa imefungwa kwenye misingi ya dini ya Kiislam kutokana na Katiba zao. H

Ni kweli kuna utatanishi juu ya chombo hiki, kama inavyoeleweka, na kutokana na jina lake-au lengo lake ni kusambaza Uislam au kuwasilimisha watu kwa hila-au kwa nguvu. Wanachama wake sio wote wenye kuamini dini ya Kiislam, au ndivyo Katiba inavyosema. Maelezo hayo hayana misingi ya ukweli. I

Katika jumla ya wanachama wake asilimia 90 ya mataifa na wanachama wanaofuata mtindo wa circularism na siyo itikadi ya kidini.

1996 TLR p233

SAMATTA JK

Mataifa yote ya Kiarabu kama Egypt na Indonesia wana Katiba ya secular-state inayooanisha dini A zote ikiwa pamoja na nchi za Ghuba, Sudan na Afrika ya Kaskazini zote zinafuata mitindo ya dunia kwenye katiba zao. Hivi sasa wenye katiba ya kujifunga na udini kuwa ni policy ni Iran; Pakistan na Saudi Arabia. Zilizobaki kama Comoros na Mauritania wanajiita Jamhuri za Kiislam bila kufuata B taratibu na sheria za Kiislam, wala kwenye katiba zao hazionyeshi hivyo na taratibu za utawala wao ni wa kidunia na kufuata sheria za madola.

Kwa kuendeleza somo hilo kwa ajili ya uchambuzi zaidi ili tuelewe mwenendo wa jumuia hiyo, kuna haja ya kueleza kuwa Equatorial Guinea, Lebanon, Cameroon na Uganda Madola hayo yote yana C katiba inayofuata mtindo wa kimataifa. Hata hivyo kuangalia tu jina kunaleta tafsiri isiyo na uchambuzi kwa sababu nchi zingine asilimia kubwa si wanaofuata dini ya Kiislam wamekuwa wanachama, ama kwa ajili ya historia au kwa mengine. D

Umoja unaonyesha kuwa unashughulikia zaidi wanachama wake kama ilivyo taratibu za Umoja wowote ule duniani.

UPIGAJI KURA

Wanaopiga kura ni wanachama, lakini umoja unatoa mwanya kwa `OBSERVER' na dola inapata faida zote za maendeleo bila ya kuwa mwanachama kamili. Kwa kifupi, ni mwanachama ndiye E anayefaidikazaidi; na kati ya Mwangalizi na asiye mwanachama, misaada hutolewa zaidi kwa mwanachama.

TANZANIA

Tanzania ni Muungano wa dola mbili yenye katiba moja, ambayo inatamka wazi kuwa Tanzania ni nchi isiyo na dini ila wananchi wake wanazo dini zao. Ina maana kidunia Tanzania Secular F state-isiyovutiwa na dini ya mtu. Pia katika Katiba Tanzania imeruhusu wananchi wake kuweza kufanya ibada zao wanazoamini bila ya bugudha. Bali Tanzania ni Jamhuri ya Muungano iliyounganisha dola mbili, bila ya kujali ukubwa wala uchumi: lakini katiba imeweka wazi vyombo vya G Muungano, yaani moja katika uzito wa jamhuri ni siasa ya mambo ya nje ambacho ni chombo kimoja katika vyombo vinavyosimamiwa na Katiba ya Muungano.

Unapojiunga kuwa mwanachama atakayewakilishwa kwenye vikao vya unongozi wa juu atakuwa Rais wa Jamhuri. Bendera itakayopepea itakuwa ni ile ya Tanzania. Siasa itakayoendeshwa itakuwa H iliyounganishwa kikatiba, yaani siasa ya kimataifa. Kutokana na maelekezo hayo, ushaur wetu ni kama ufuatao.

(a) Kama ni lazima kuwa katika Umoja wa Organisation of the Islamic Conference, tufuatilie msimamo wa Nigeria na Mozambique ambao walikuwa observer; na pia kwa sababu Tanzania imefaidika kupatiwa misaada kutokana IOC kwa ajili ya mradi wa Kibiti-Lindi bila ya I kuwa mwanachama.

A (b) Indonesia si mwanachama kutokana na katiba yake, lakini walianza kujiunga kama permanent participant na hadi leo Dunia inaamini wanachama, lakini katiba ilibidi waitafutie mbinu ya kisheria na wakatokana na msimamo huo. Pengine Tanzania tungeendeleza uchunguzi juu ya mtindo huo.

(c) Tanzania inawesa ikawa associate member na itakuwa non voting (sic) member bila ya B kupinga katiba ya Jamhuri ya Muungano.

Kwa kumaliza na kwa kukubali kuwa Katiba ni yetu inayotuongoza-uamuzi wetu ni lazima kuangalia maslahi ya Taifa na kuepusha fikra potofu miongoni mwa wananchi wa dola yetu. Hivyo kwa Zanzibar C kujiunga peekee ni suala la katiba. Ufumbuzi ni kama nilivyoelezea hapo juu.

(Signed) A Hassan Diria
WAZIRI WA MAMBO YA NJE NA USHIRIKIANO WA
KIMATAIFA'

Exh P3 reads as follows: D

`Nd J S Malecela, (Mb)
Waziri Mkuu na Makumu wa
Kwanza wa Rais,
DODOMA. E
KUH: MAOMBI YA ZANZIBAR KUJIUNGA NA `THE
ORGANISATION OF ISLAMIC CONFERENCE'

1. Kwa Dokezo lako la tarehe 21 Septemba, 1991 ulinitaka nifanye uchambuzi wa kisheria na nikupe maoni yangu.

2. Nimefanya uchambuzi wa Katiba ya `Organisation' hiyo pamoja na Katiba ya Jamhuri ya Muungano F wa Tanzania. Kutokana na uchambuzi huo, maoni na ushauri wangu ni kama ifuatavyo:

(i) Chimbuko la Umoja huu ni Mkutano wa viongozi wa Nchi na Serikali uliofanyika Rabat, Morocco, 1969.

(ii) Ni `Inter-Governmental Organisation' ambayo wanachama wake ni nchi za Kiislam. G

(iii) Mikutano yake ni ya `Heads of State' na mingine ni ya `Foreign Affairs Ministers' wa nchi za Kiislamu.

(iv) Madhumuni yake Kimsingi ni ya Kidini na mengine ni ya Kisiasa. Article II Ibara ya 1 lengo ni `to promote Islamic Solidarity among member States' yanayofuata toka Ibara ya 2 hadi 7 Kidini H na mengine ni ya Kisiasa.

3. Kwa kuzingatia misingi ya malengo na shabaha ya Umoja huu kama Katiba yao inavyooanisha kwa upande wa Tanzania kuwa mambo ya msingi ya kuzingatia kabla ya kufikia uamuzi juu ya Zanzibar kujiunga. Kwanza kwa jinsi Muungano ulivyo Kikatiba, Tanzania ni nchi moja na ni Jamhuri I yha Muungano-One State and a United Sovereign Republic. Katika hali hiyo:

(i) Ilivyokuwa uanachama wa Umoja huoni wa Dola, itakuwa ni kinyume cha Katiba kwa sehemu A moja ya Jamhuri kujiunga kama nchi na kuacha nyingine.

(ii) Pili, mambo ya uhusiano na nchi za Nje Kikatiba na Kimazoea ni mambo yanayoendeshwa Kimuungano (International Relations). B

(iii) Tatu, Siasa na sera ya nchi yetu Tanzania ni kwamba Serikali na Dola havina dini. Watu wake ndiyo waumini. Hivyo, wakati wote msimamo ni kutochanganya mambo ya Dola na Dini.

(iv) Kwa siasa yetu jinsi ilivyo, kujiunga na Umoja huo kama Dola inazusha maswali ya msingi. Mabadiliko ya msimamo kisiasa juu ya Dini na mfumo wa kuendesha shughuli kwa sehemu C moja ya Tanzania na kuacha nyingine.

4. USHAURI

Kwa kuzingatia mfumo wa siasa ya Tanzania na Katiba yake kama Nchi moja (One Sovereign State) tangu 1964 na tangu 1969 Umoja huo umekuwepo bila sisi kujiunga, nashauri: D

(a) Ni kinyume cha Katiba kwa Zanzibar kujiunga Katika Chombo ambacho wanachama wake ni dola za Kiislamu.

(b) Kama ni mwafaka na imeamuliwa na kukubalika ni Tanzania ndiyo inaweza kujiunga. Hii ni baada ya kubadili sera na Siasa yetu juu ya Dini na Dola. E

(c) Waziri wa Mambo ya Nje na Ushirkiano wa Kimataifa, naye kwa maelezo yake haoni ni sawa kufanya hivyo.

--Nakala ya maoni yake imeambatanishwa.

(d) Nakubali ikiwa ni lazima, kama alivyoshauri Waziri wa Mambo ya Nje kutafuta njia ya kushirikiana katika mikutano ya OIC kwa misingi waliyowezakufanya nchi ambazo si za F Kiislam ingawa Katiba ya Umoja huo inataka hivyo (Islamic State).

(e) La busara kama ndiyo linakubaliwa na IOC ni kwa vyombo vya Waislamu kama vile BAKWATA, BALUKTA NK kujiunga na siyo Dola. Hiyo ndiyo ingekuwa njia sahihi isiyokiuka Katiba au Siasa ya nchi. Kwa jinsi iliivyoletwa, na kwa mfumo wa Kikatiba tulio nao sasa na siasa yetu G kwa maoni yangu ni suala nyeti ambalo uamuzi wake ukifanywa kwa pupa unaweza kutuletea hali ya vuragu.

Nakurejeshea nakala ya Katiba ya OIC.

D Z Lubuva, Mb H

MWANASHERIA MKUU WA SERIKALI'

The plaintiff asserted that on December 17, 1992 the Hon Hassan Diria, the then Minister for Foreign Affairs and International Co-operation, admitted at a press conference that Zanzibar had joined the OIC. The plaintiff did not, however, say that he I was present at the press conference. When cross-examined by Mr Mwidunda, he

said that he came to learn that Zanzibar had joined the OIC when he read several A newspapers, including Motomoto and Daily News. No copy of the constitution of the OIC was produced before me. It is not disputed that the National Assembly of the United Republic formed a committee to probe Zanzibar's alleged membership of the OIC and B that that Committee's report was debated in the House. Essentially, this was the evidence laid before me. At the commencement of the trial the following issues were framed:

1. Whether Zanzibar joined the OIC.

C 2. If the answer to the first issue is in the affirmative, was that action contrary to the provisions of s 1, 8(2), 19(2), 26(1) and 42(5) or any other provision of the Constitution the United Republic of Tanzania?

3. Did President Ali Hassan Mwinyi allow Zanzibar to join the OIC or did he in any way facilitate that step being taken? D

4. If the answer to Issue No 3 is in the negative, did President Ali Hassan Mwinyi condone Zanzibar's act of joining the OIC and, if he did, did that constitute a violation of any provision of the Constitution of the United Republic?

E 5. Did President Ali Hassan Mwinyi omit to take remedial steps after Zanzibar joined the OIC? If the answer to question is in the affirmative, did the omission constitute a violation of any provision of the constitution of the United Republic?

6. If President Ali Hassan Mwinyi violated the Constitution of the United Republic F as alleged, do any or more of those violations make him unfit to continue occupying the office of President of the United Republic?

7. What reliefs, if any, are the parties entitled to? As already pointed out, at the close of the plaintiff's case Mr Mwidunda submitted that the plaintiff had made G out no case. The learned Senior State Attorney invited me to dismiss the case at that stage. The plaintiff, who, as

already remarked, appeared in person, contended that the defendant has a case to answer. Mr Mwidunda contended, inter alia, that to establish a case to answer against the defendant the plaintiff H had to give or adduce evidence concerning, inter alia, what the OIC is, its objectives and juridical nature. According to the learned Senior State Attorney, the contents of Exhibits P1, P2 and P3 do not in any way support the averment that Zanzibar joined the OIC. Those letters, Mr Mwidunda submits, were no I more than `consultative correspondence'. The plaintiff, on the other hand,

submits that, to use his own words, "the fact that Zanzibar joined the OIC is a A fact of common knowledge for non-issues cannot occupy the Government and the parliament of the United Republic of Tanzania".

Can a defendant, at the close of a plaintiff's case submit in law that there is no case to B answer? Eighteen years ago, in Daikin Air Conditioning (EA) Ltd v Harvard University (1), I ventured to answer that question in the affirmative. I adhere to that view. A submission of no case to answer in a civil case stands on the same footing as a C submission of no case to answer in a criminal case, save that there is a difference in the standard of proof. What, then, is the test to be applied when such a submission is made? As I understand the law, when the dismissal of the plaintiff's case on the basis that no case has been made out is prayed for, the court should not ask itself whether the D evidence given and/or adduced by the plaintiff establishes what would finally be required to be established, but whether there is evidence upon which a court, applying its mind reasonably to such evidence, could or might (not should nor ought to) find for the plaintiff. The submission of no case to answer cannot be upheld if there is sufficient E evidence on record on which a court might make a reasonable mistake and enter a judgment for the plaintiff. Whereas the test to be applied at the close of the defendant's case is what ought a reasonable court to do?, the one to be applied in determining the validity or otherwise of a submission of no case to answer is what might a reasonable F court do?: See Supreme Service Station (1969) (Pvt) Ltd v Fox and Goodridge (Pvt) Ltd (2). The latter test I have described is the one I must apply in determining Mr Mwidunda's submission in the matter now before me.

It is a general rule of law that all facts in issue and relevant facts must be established by G evidence, either oral or documentary. There are two exceptions to this rule: (1) facts judicially noticeable under s 59 of the Evidence Act, 1967 (the Act); and (2) facts admitted. Since the averment that Zanzibar has joined the OIC is not admitted by the H defendant, there is onus on the plaintiff to establish that fact to the degree required by law. Has he succeeded to do so? My answer is no. While there may exist a general belief among members of the public in the country that Zanzibar joined the organisation, that belief cannot in law constitute the basis for holding that the plaintiff has discharged his onus in this case. The general belief does not authorise a court of law to take judicial I notice of the

alleged fact under s 59 of the Act. The plaintiff had to place before this Court evidence A which demonstrated, to the degree I have endeavoured to explain, that Zanzibar did become a member of the OIC or from which that conclusion could reasonably be drawn. I have sympathetically examined the evidence laid before me and in the end I am of the B clear opinion that the plaintiff's evidence does not even begin to establish Zanzibar's membership of the OIC. The plaintiff has not, strangely, produced before this Court a copy of the constitution of the organisation. It is difficult to see how he believed that this Court could hold that Zanzibar became a member of the organisation without examining C the organisation's constitution. Be that as it may, the contents of Exh P1, P2 and P3 do not, in my considered opinion, establish a prima facie case that Zanzibar joined the organisation. Those letters reveal no more than the Government's efforts to find out whether Zanzibar joining the organisation would be constitutional. In my settled opinion, D there is no basis for acceding to the plaintiff's contention that he has made out a case on the first issue.

But assuming I am wrong in so holding, I ask myself whether there is enough evidence before this Court authorising me to call upon the defendant to answer the plaintiff's case E insofar as the third, fourth and fifth issues are concerned? Here, too, I have examined the evidence on record with much sympathy but in the end I feel compelled to answer the question in the negative. There is, in my opinion, no admissible evidence which reveals the role which the President played in Zanzibar joining the OIC, assuming she F did. The evidence which the plaintiff though established the President's role-radio and newspaper reports-is nothing but heresay evidence. Under s 62 of the Act that evidence was clearly inadmissible to establish the alleged role. At best, the plaintiff's evidence on G the third, fourth and fifth issues is speculative. A court of law cannot, even at the stage which the case before me has reached, make a finding on the basis of such evidence. The documentary evidence laid before me is not at all helpful to the plaintiff on the three issues.

For the reasons I have given, I am of opinion that Mr Mwidunda's submission that the H defendant has no case to answer must be upheld. Having reached that conclusion, I do not find it necessary to deal with Mr Mwidunda's other arguments concerning limits of this Court's power to give declaratory judgments.

The suit is dismissed with costs. I

1996 TLR p239

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[zRPz]CARITAS TANZANIA AND ANOTHER v STUWARD MKWAWA 1996 TLR 239 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Bubeshi J

B

CIVIL APPEAL NO 21 OF 1994

1 August, 1995

Flynote

Civil Practice and Procedure - Service of summons - Defendant's refusal to acknowledge service C - Procedure to be followed by plaintiff for judgment - Order 9 rule 6(1)(a)(ii)(B) and Order 8 rule 14(2)(b) of the Civil Procedure Code, 1966.

Civl Practice and Procedure - Written judgment - Requisite content of such judgment - Order 20 rules 4 and 5 of the Civil Procedure Code, 1966. D

Damages - Quantum of - Ex-parte proof by affidavit - Extent of court's duty to scrutinize the evidence on affidavit to arrive at acceptable quantum. E

-Headnote

On 1 January 1993, the Second Appellant, who is an employee of the First Appellant, collided with the Respondent's vehicle. Upon the Respondent filing suit against the Appellants, the latter refused service of the summons. The trial Magistrate subsequently allowed the Respondent to file an affidavit for ex-parte proof of damages and judgment. F The magistrate then awarded the Respondent Shs 550,000/=, representing the repair costs of the Respondent's vehicle, as well as Shs 8,640,000/= as compensation for loss of use of the vehicle.

The Appellants appealed to this Court by challenging the validity of the trial court's judgment and contending, firstly, that it was not a proper judgment for failure to contain G `a concise statement of the case, the points for determination, the decision thereon, and the reasons for such decision'; and secondly, that the amounts awarded on both heads of damage were unrealistic.

Held:

(i) Order 8 rule 14(2)(b) requires a plaintiff to apply formally to court for permission H to proceed with ex parte proof of damages allegedly suffered; and the Respondent in casu failed to comply with this requirement in the court below.

(ii) Although Rules 4 and 5 of Order 20 of the Civil Procedure Code require judgments to contain a concise statement of the case, the points for I determination, the decision arrived at and the reasons for such decision, the content of each judgment depends upon the parti-

A cular case and there is thus no specific format as to how a judgment should be presented.

(iii) Affidavits, like any other piece of evidence, must be analysed and evaluated by the court even when unchallenged; and the court's scrutiny thereof is all the more important in cases where pecuniary compensation is claimed. In casu, B the filed affidavit was not proof of the loss alleged since there was no evidence before the court as to how the relevant figures had been arrived at.

(iv) The appeal is allowed with costs, to the extent that the case is remitted to another magistrate who is instructed to admit further evidence.

Case Information

Ordered accordingly. C

Cases referred to:

1. Transport Equipment Limited v D P Valambhia Civil Case No 210 of 1989 (unreported)

Kapinga, for the appellants.

Mutaitima, for the respondent.

[zJDz]Judgment

Bubeshi J:

The appellants in this case are Caritas Tanzania and Natal Fidelis who is an employee of the first appellant. Both appellants are aggrieved by the decision of the trial magistrate wherein on 3 February 1994 an ex-parte judgment was entered against them in favour of the respondent one Stuward Mkwawa who had his vehicle damaged by the second appellant whilst driving the vehicle belonging to the first appellant. The trial magistrate awarded the respondent:

-- Shs 550,000/= as costs of repair to his vehicle

-- Compensation for loss of use of the tune of Shs 8,640,000/=.

The facts of this case briefly stated are that the plaintiff, now respondent, filed a suit against the defendants, now appellants, claiming Shs 550,000/= as costs of repair to his damaged vehicle and Shs 8,640,000/= being loss of use when the respondent vehicle stayed idle after the accident. It is not in dispute that the respondent's vehicle was damaged by the second appellant on 1 January 1993. Liability was admitted but since the appellants did not respond to the respondent's claim, the latter decided to take the matter to court. The case was assigned for mention on 16 December 1993 and when the summons for disposal of suit was served on the appellants, the latter refused to be served. The trial magistrate then allowed the respondent to file an affidavit for experts proof and subsequently judgment was entered in favour of the respondent as prayed. It may be pertinent to mention here that as the appellants

had refused to be served on 14 December 1993, the subsequent events took place without their being aware.

Mr Kapinga learned counsel for the appellants has filed four grounds of appeal against the judgment of the trial magistrate. There are:

(a) that the learned trial magistrate erred for failing to write a judgment.

(b) in the alternative to (a) above that the learned magistrate erred in law and in fact in awarding the respondent the sum of Shs 550,000/= as costs of repair

(c) that the award of compensation in the sum of Shs 8,640,000/= to the respondent for loss of use of the motor vehicle was unreasonable and was not supported by evidence.

(d) that the damage caused to the respondents vehicle ie rear left gate dented, left gate window glass broken and rear bumber bent could not prevent the respondents vehicle from operations nor could it, in the ordinary course of business take ten months to repair.

--that the learned magistrate failed to take into account the principle of mitigation of damages.

In his submission Mr Kapinga went on to elaborate on the grounds. Mr Kapinga learned counsel attacked the `judgment' of the trial magistrate in that it was not a proper judgment as

required by Order 20 Rules 3 and 4 of the Civil Procedure Code 1966. The judgment of the trial magistrate read:

`Order: Upon filing the ex-parte affidavit, judgment is entered in favour of plaintiff as prayed.' G

Mr Kapinga submitted before this court that what was written by the trial magistrate was not a proper judgment. That Order 20 Rules 3 and 4 makes it mandatory that a judgment must be written and shall contain `a concise Statement of the case, the points for H determination, the decision thereon and the reasons for such decision'. That the trial magistrate failed to write a judgment and therefore even the decree that followed could not agree with the judgment as there was none trial since there is no judgment then there could be no decree. Mr Kapinga urged the court to allow the appeal on this ground with alone costs. I

Without prejudice to the foregoing, should the Court hold that

there is an appealable judgment and decree, Mr Kapinga submitted that there was no A proof that the respondent expended the sum of Shs 550,000/= on repairs. There was no receipt tendered by the respondent. According to Mr Kapinga, the trial magistrate should have deducted the sum of Shs 180,000/= as there was no proof of panel beating and B spraying' to the tune of Shs 180,000/=. This sum ought to have been deducted from the total sum claimed.

On the issue of the loss of use Mr Kapinga learned counsel is challenging the figure of Shs 8,640,000/= as being unrealistic. That the date of the repair to the vehicle is not C known although annexure `C' (an invoice of Sanbern Engineering Services Limited) would suggest that the repairs were probably done on 15 July 1993 some 194 days after the accident. Mr Kapinga was of the view that the time spent to repair the vehicle was unreasonably long considering the nature of the damage to the vehicle. According to Mr Kapinga a reasonable period would not exceed two weeks. Furthermore it was Mr D Kapinga's contention that the respondent's vehicle could not have been operational for all the 280 days and made 40 trips daily without interruption. This is not feasible in practice and the trial magistrate did not take that into account. That it was necessary for E the respondent to support his claim of loss of use by produce some evidence of operations prior to the accident so as to indicate the trend of his income from operations of the vehicle.

That the award of Shs 8,640,000/= was speculative and not supported by evidence, urgued Mr Kapinga for the appellants. In addition, Mr Kapinga submitted that going by the F vehicle inspection Report annexure `A' to the affidavit not be prevented from being operational or take 10 months to repair. The damage described in the said inspection report read as follows:

`after accident

G Rear lift gate dented; Lift gate window glass broken; Rear bumper bent'

Finally Mr Kapinga submitted that the respondent had a legal duty to mitigate the loss after the accident. That if the vehicle was damaged on 1 January 1993, the respondent H should have taken immediate steps to repair his vehicle and repair it within two weeks at the most and not ten months.

Armed with all this, learned counsel for the appellants asked the court to allow the appeal with costs. I

Appearing for the respondent Mr Mutaitima from Tanzania Legal Corporation replied as follows.

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BUBESHI J

As to the issue of the format of a paper judgment counsel submitted that the law does A not stipulate a particular format of how a judgment should look like and that no decision has been reversed simply because the judgment is too short. The respondent has cited the case of Transport Equipment Limited v D P Valambhia (1) by Rubama J (as he then B was); that the procedure was not faulted by the Court of Appeal.

On the issue of costs of repair to the vehicle, counsel submitted that the relevant document, annexure C, was produced before the court. This was not contradicted by the applicants/defendants. That the respondent could not produce receipt since the C monies were yet to be paid.

On the compensation for loss of use counsel for the respondent submitted that there was such evidence available before the trial magistrate. And since the affidavit was not open for challenge the trial magistrate was not in error. It was counsel's contention that D the claim was sufficiently proved. As to the duty to mitigate loss, counsel for respondents while conceding that the respondent has a duty in Law to mitigate loss was of the opinion that it was the appellants who preversed the respondents from so doing by their refusal to sign the insurance forms. The appellants cannot be heard now to rely on E that equitable doctrine.

All in all the respondents are submitting that the appeal be dismissed with costs for lack of substance.

I have had time to study the record of this case. The revelations are that the appellants then defendants were served with summons to appear for the mention (and not hearing) F on 16 December 1993. The appellants refused to acknowledge service of summons and the Court was entitled to enter judgment for the plaintiff.

However, I think the trial magistrate ought to have been guided by the procedure under Order 9 Rule 6(1)(a)ii(B) which reads: G

`6 (1) where the plaintiff appears and the defendant does not appear when the suit is called for hearing then

(a)(i)...

(ii) If the suit is before any court other then the High Court. H

(A) ...

(B) the summons issued was a summons to appear and it is proved that the summons was duly served, the court may enter judgment for the plaintiff.'

In the instant case it is evident the court proceeded under Order 8 Rule 14(2)(b). The I relevant proviso reads:

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BUBESHI J

A `14(1) ...

(2) In any case in which a defendant who is required under subrule (2) of Rule (1) to present his written statement of defence fails to do so within the period specified in the summons the Court may--

B (a) ...

(b) in any other case, upon application in writing by the plaintiff, fix a day for ex-parte proof and may pronounce judgment in favour of the plaintiff upon such proof of his claim.' (Emphasis supplied) C

I say the trial magistrate was in error to act under this provision because in the first instance the summons issue to the defendants now appellants did not require him to present their defence within a period stated. The summons issued to the appellants D required them to appear in court without fail and produce documents they intended to rely on, Secondly, the plaintiff did not formerly apply to court for ex-parte proof in terms of Order 8 Rule 14(2)(b) above cited. I would therefore agree with Mr Kapinga learned counsel for the appellants that the procedure adopted by the trial magistrate was irregular. E

Coming now to the first ground of appeal-the judgment. Rules 4 and 5 of Order 20 of the Civil Procedure Code 1966 provide that a judgment should contain a concise statement of the case, the points, for determination, the decision that was reached and the reason for such decision. F

There is however no specific format of how a judgment should look. It is sufficient if it is formulated to contain the elements stated hereinabove. And the contents in each judgment would on the whole depend on each individual case. G

What happened in the case/appeal before me is that after the plaintiff had filed an affidavit for ex-parte proof pursuant to an order of the trial magistrate, the latter recorded the order that

`Upon filing the ex-parte affidavit, judgment is entered in favour of the plaintiff as prayed Sgd.' H

In my humble view the trial magistrate strayed into an error when he entered judgment for the plaintiff without evaluating the contents of the affidavit in as far as proof for damages or claim was concerned. An affidavit like any other piece of evidence has to be I analysed and evaluated even where it is not being challenged. One

does not merely file an affidavit and expect the trial court to act on it wholesale without A some scrutiny. The scrutiny of the affidavit is more so in such cases as the appeal before me where damages and or compensation are being claimed. Paragraph 9 of the plaintiffs affidavit states: B

`9, That shillings five hundred and fifty thousand was required to repair the vehicle as shown on an invoice by Sanbern Engineering Services Limited annexed hereto and marked C.'

The immediate question that comes to my mind is: was this figure (Shs 550,000/=) the C actual sum that the plaintiff paid for the repair? Was there a receipt issued? The respondent has stated that

`the respondent could not produce a receipt because the monies were yet to be paid'. D

That being the case the actual repair expenses could not be the sum of Shs 550,000/=.

Similarly for the compensation figure of Shs 8,640,000/= there was no evidence to show how this figure had been arrived at. It was the duty of the trial magistrate to analyse the E evidence before him and come to his own conclusion. By merely adopting the filed affidavit is not proof in such a case. What I wish to emphasize is that whether it is a long judgment or a short one, each case has to examined on its own facts. And the facts of each will dictate what type of judgment shall emanate therefrom. In cases for ex-parte F proof by affidavit the trial magistrate has a duty to examine the filed affidavit and satisfy himself whether the alleged claim has been proved by the affidavit or otherwise.

That being the position I am inclined to allow the appeal and order that the case be heard G before another magistrate with mandate to admit further evidence. And to the extent this appeal is allowed with costs.

1996 TLR p246

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[zRPz]TANZANIA BUNDU SAFARIS LTD v DIRECTOR OF WILDLIFE & ANOTHER 1996 TLR 246 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Mapigano J

B

CIVIL CASE NO 21 OF 1995

17 August, 1995

Flynote

Civil Practice and Procedure - Contempt of court - What constitutes. C

Civil Practice and Procedure - Contempt of court - Proceedings for - Purpose of such proceedings.

Civil Practice and Procedure - Contempt of court - Application for committal for - When competent. D

-Headnote

The Plaintiff is a hunting-safari tour operator. It takes its clients on such safaris in Tanzania, collects fees from them, remits a portion thereof to the Government and then exports the trophies from the hunt to its clients in their home countries.

The First Defendant, in its turn, allocates to the Plaintiff various hunting blocks for the E purpose of its safaris. In letters dated 3 March 1990 and 24 January 1995, the First Defendant informed the Plaintiff that it was confiscating the Plaintiff's trophies for failure to remit fees, and that it was withdrawing the Plaintiff's hunting blocks and removing it from the list of operating companies, respectively. F

Aggrieved by the First Defendant's decisions as aforesaid, the Plaintiff obtained two orders against it. On 31 January 1995, the Plaintiff obtained a temporary injunction ordering the First Defendant to suspend the withdrawal of the blocks, pending the outcome of a chamber summons suit (filed the same day) for the determination of the G validity of the First

Defendant's decision. On 12 May 1995, a consent order was made in regard to the chamber summons that the terms of the consent order made by Kyando J in Misc. Cause No. 84 of 1994 should be honoured by the First Defendant.

The Plaintiff applies to this Court for the committal of the First Defendant, in that it is alleged that he is in default of the above two orders for failure to return the blocks to the H Plaintiff.

Held:

(i) On the facts before the Court, the First Defendant had actually failed to carry out his obligations and that his failure constituted a breach of the orders.

I (ii) The First Defendant understood the purport of the orders and even went so far as to re-allocate the blocks in question to other persons. It

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A has accordingly deliberately set the Court at defiance and actually flouted the orders of the Court.

(iii) The prime object of contempt of court proceedings is to vindicate the rule of law, rather than to punish an individual. The punitive jurisdiction of the court to punish for contempt is based upon the fundamental principle that it is for the good of the public and the parties that such orders should not be despised or slighted. B

(iv) Civil contempt does not require immediate imprisonment, for it is also punishable by the imposition of a fine.

(v) The penalty, in casu, which corresponds to the measure of contempt and the injury to the public interest, is that the First Defendant personally is fined in the C amount of Shs. 200,000/=, payable within seven days, failing which, incarceration for three months.

(vi) Costs in favour of the Plaintiff.

Case Information

Ordered accordingly.

Nyange, for the Plaintiff. D

Salula, for the Defendants.

[zJDz]Judgment

Mapigano, J:

Disciplinary proceeding has been brought by the plaintiff company against the Director of E Wildlife by which an order to commit the said Director to prison for contempt of court is sought, and in this ruling I will refer to him simply as `The Director'.

The abbreviated background of the matter is this. The plaintiff is an outfitter of tourist hunting safaris, and was allocated hunting blocks by the Director for that purpose. It has appointed agents abroad to look for and bring clients to Tanzania for hunting expeditions. F The agents are required to collect fees from the clients and transmit a portion of the sum so levied to Tanzania; and on its part the plaintiff is required to export the trophies gathered by the clients during the expeditions to them. G

By a letter dated 3 January 1990 the Director notified the plaintiff of his decision to confiscate the trophies acquired by its clients during the 1988/89 hunting season. His action was allegedly based upon a default on the part of the plaintiff to cause the fees to be remitted. And by a letter

dated 24 January 1995 he notified the plaintiff of his decision H to withdraw the hunting blocks from it and to remove it `from the list of operating companies in Tanzania', the justification of the action being the allegation that the plaintiff had failed to export the trophies.
Aggrieved, the plaintiff instituted this suit on 31 January 1995 to impugn the validity of the I decision of the Director and to seek, inter

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MAPIGANO J

alia, a nullification of the decision and a restoration of the blocks to it. A

On the same day the plaintiff took out a chamber summons applying for a temporary injunction to restrain the Director from giving effect to his decision. Again on the same B day it obtained an interim order, upon an ex-parte verbal application, which enjoined the Director to suspend the withdrawal of the blocks pending the hearing and determination of the chamber summons.

On 12 May 1995 a consent order was made in regard to the chamber summons that the terms of the consent order made by Kyando, J in Misc cause No 84 of 1994 should be C honoured by the Director.

The charge against the Director in this committal proceeding is that he has refused to comply with the orders of 31 January 1995 and 12 May 1995, in that he has not returned the blocks to the plaintiff D

I pause here to say a few words about Misc cause No 84 of 1994, which I will henceforth call `The other case' or `that case'. It was an application for prerogative reliefs brought by the plaintiff, along with two others, against the Principal Secretary in the Ministry of E Tourism, Natural Resources and Environment. In relation to the plaintiff that case was in all respects similar with this suit, save, as just mentioned, for the parties impugned and the mode of proceedings, and this is virtually recognised by the Director vide para 25(c) of his counter-affidavit in the injunction proceeding in this case, and it may also be F observed that that counter-affidavit is almost a replica of the one he filed in that case. I should, therefore, be permitted to pay attention and make references to some of the materials and documents obtaining therein and adopt certain findings which were pronounced by this court. G

Upon an application for a temporary injunction brought by the applicants in that case, Kyando J gave an order on 15 August 1994 that the status quo be maintained and that order still subsists. The Director, though not a party, felt obliged to restore the blocks to the applicants, and he did so in the same month. But he later turned round and H dispossessed the applicants of the blocks. Committal proceedings were then brought by the applicants against the Principal Secretary and the Director for contempt. The applications failed. This Court held that the Principal Secretary was not answerable for the wrongs which were committed by the Director; and that although the conduct of the I Director could be regarded as perverse and detractive of the status quo order, he could not be held to be in

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MAPIGANO J

contempt, regard being had to the fact that he was neither a party to the substantive A application or the person who was restrained by the injunction.

The Director has deposed in para 13 of his counter-affidavit in the instant application, as he did in the other case, but the plaintiff denies, like it did in that case, that the restoration B of the blocks to the plaintiff in August 1994, was made upon the plaintiff's undertaking that it would pay the requisite block fees. I dealt with this point in the other case. I did not accept the Director's assertion.

In para 15 of the counter-affidavit the Director makes the allegation that the blocks were C available to the plaintiff for utilisation for the whole of the 1994/95 hunting season, which started in July 1994 and ended in March 1995. This allegation is undoubtedly false, and the letter of 24 January 1995 gives him that lie.

The Director also makes the allegation in para 10 of the counter-affidavit, that what D engendered the withdrawal of the blocks was a failure on the part of the plaintiff to meet the requisite block fees. I just cannot help thinking that the Director has misconceived the present proceeding, if he does not have a serious credibility problem. No doubt, his deposition is at variance with what he wrote in his letter of 24 January 1995. As we have E already seen, he stated in that letter, in terms explicit, that his decision was predicated upon the plaintiff's failure to consign trophies to its clients abroad.

The essence of the Director's arguments in paras 8 and 9 of the counter-affidavit is that the real purpose of the order given by Kyando J on 15 August 1994 in the other case F was the preservation of the condition in which things were at the time when the order was made. I have also dealt with this point in that case. I held that the true intent of that order was the preservation of the state of things which obtained at the time of filing that case until the rights of the parties could be ascertained and finally determined. And I G demonstrate that that is exactly what the director took the order to connote.

Paragraph 26 of the counter-affidavit sets out two contentions. The first is that there is no suit which has been properly instituted in court, and that an interim injunction cannot H thus be granted. I must suppose that this contention has reference to the other case. The second argument is that the injunction granted by this court has passed out, given the provision of GN 508/91, which in so far as is relevant, stipulates that a temporary injunction prevails for a period of six months only, unless that period is extended. I

I am quite unable to agree. The Director has possibly overlooked

the fact that the second injunction order in this case was made on 12 May 1995, and it A cannot, therefore, be said that its period has expired. If the Director has in mind the ex-parte order of 31 January 1995, it is pointed out to him that the breaches charged are said to have occurred when that order was still in force, which renders GN 508/91 absolutely irrelevant. B

I proceed to consider and decide the question whether the Director is in breach. The order of 31 January 1995 directed the Director to suspend the withdrawal of the suit-blocks. As the plaintiff rightly contends, that order was meant to prevail until it was C discharged or superseded by another order. As long as it existed it should have been obeyed by the Director. And to all intents and purposes the order had the effect of restoring the relationship of the parties to what

it was before 24 January 1995. But what has happened is that the Director has not only refused to suspend the withdrawal but has purported to re-allocate the blocks to other persons. D

The order of 12 May 1995 displaced the ex-parte order. But as I have already pointed out, that order embraced the terms of the order of 15 August 1994 made in the other case and those terms were designed to preserve the state of things existing at the time E that case was instituted. I should also repeat, by way of emphasis, that that is exactly what the Director perceived it to imply!

In the circumstances I entertain no doubt whatever that the Director has actually failed to carry out his obligations and that his failure constitutes a breach. F

Next, I have to consider and decide the point whether the Director is in contempt. His contention in para 29 of the counter-affidavit is that there was no intention on his part to show disrespect to the Court, and his plea is that he should be pardoned.

I have given the matter my best consideration and I am sorry to say that I have been G unable to accept the Director's contention. The Director does not deny that he was cognizant of the orders, and I may repeat again that he understood their purport. But he still refused to give possession of the blocks back to the plaintiff. Not only that. He proceeded to reallocate the blocks to other persons. This, in my view, is clear evidence, H and I am satisfied beyond all reasonable doubt that Mr Ndolanga, the incumbent Director, has deliberately set the court at defiance and actually flouted the orders of the Court.

Lastly, I have to consider and determine the question of punishment, which has also I exercised my mind greatly. Disregard of orders of court is certainly a matter of gravity, whatever the order may be

and irrespective of whether it has been irregularly or erroneously made. The punitive A jurisdiction of the court to punish for breach is based upon the fundamental principle that it is for the good of the public and the parties that such orders should not be despised or slighted. And I think it is neither incongruous nor extravagant to add that a party, however highly placed or well-circumstanced he may happen to be, ought to know that he is B obliged to obey the orders given by courts, and indeed, that is perfectly consistent with the much talked about rule of law concept.

The prime object of proceedings of this nature is to vindicate the rule of law by a finding C of contempt, rather than to punish an individual. It seems to me, however, that Mr Ndolanga's degree of contumacy is sufficiently great to justify this court in inflicting punishment upon him. Indeed, I consider his contempt as bordering on flagrance in the very least. But I have, nevertheless, hesitated to send him to prison straightaway. D

The law holds that civil contempt is also punishable by imposition of fine. The penalty I award, which in my judgment corresponds to the measure of contempt and the injury due to the public interest, is that Mr Ndolanga is to pay a sum of two hundred thousand shillings (Shs 200,000/=) as a fine within a space of seven days from today, and if he E defaults, to go to jail to serve a

term of three months. It is so ordered. It is also ordered that he pays the costs incurred by the plaintiff in this application.

1996 TLR p252

A

[zRPz]WILLIAM KIMARO & 475 OTHERS v COOPERS & LYBRAND AND ANOTHER 1996 TLR 252 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Ramadhani JJA, Mnzavas JJA and Mfalila JJA

B

CIVIL APPEAL NO 5 OF 1995

23 October, 1995

(Appeal from the judgment of the High Court of Tanzania, Dar es Salaam, Bahati J.) C

Flynote

Company Law - Winding up - Creditors' claims against company in liquidation - Proof of debt on affidavit is required for cause of action - Companies (Winding Up) Rules, 1929. D

-Headnote

The First Appellant filed a representative suit on behalf of the other appellants against the Respondents. The First Respondent is the liquidator of Zambia Tanzania Road Services Ltd, the Second Respondent. The Appellants were all employees of the Second Respondent. E

During August 1985, the Second Respondent was placed into liquidation. The Second Respondent then informed the Appellants that their terminal benefits could not be paid immediately, owing to the financial state of the now liquidated Second Respondent and bearing in mind the order of preference of the various creditors. After obtaining a 'loan' from the Government of Tanzania, one of the shareholders, the Appellants were paid F Shs 32,761,927/= in total and in full and final settlement of their claims. This payment was made in July 1987, some two years after their due date in August 1985.

The Appellants duly filed a suit in the court below for Shs 84,779,770/05, being in respect of `repatriation costs, luggage allowance, outstation allowance and a subsistence G allowance for 664 days' based on the devaluation of the Tanzanian shilling, increased transport costs and outstation allowances which had taken place over the two-year period since the company's liquidation when the benefits were due and payable.

The trial Judge found that the claims were valid, but dismissed them on the basis that the claims had not been proved as required by the Companies (Winding Up) Rules, H 1929, and that therefore the entire claim was premature.

The Appellants appeal on the ground that the trial Judge erred in holding that the suit was premature and that therefore there was no cause of action.

Held: I

(i) For the trial Judge to have determined the validity of the claims after

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A finding that they were premature was incorrect, since he was thereby virtually pre-empting the decision of the liquidator.

(ii) The Companies (Winding Up) Rules, 1929, require any debt to be proved by affidavit; and until this is done, there can be no cause of action.

(iii) The two claims in this suit were thus prematurely lodged. B

(iv) The appeal is dismissed in its entirety, with costs.

Case Information

Ordered accordingly.

Semgalawe, for the Appellants.

Nguluma, for the Respondents. C

[zJDz]Judgment

Mfalila, JA:

The appellant William Kimaro filed a representative suit in the High Court, on behalf of himself and 475 other fellow ex-employees of Zambia Tanzania Road Services Ltd. The D suit was filed against the liquidators of the said company because it was then under liquidation. The liquidators are Coopers & Lybrand, the present respondents. The appellant demanded a total of Shs 84,779,770.05/= being the difference between repatriation costs paid in July 1987 but calculated at the rates obtaining on 8 August E 1985 when the company was wound up and those actually obtaining in July 1987.

Perhaps a brief background to the claim would clarify the position. Zambia Tanzania Road Services Ltd was a limited liability company incorporated in Zambia and was F registered in Tanzania as a branch of a foreign company, but the shareholders of the company were the Governments of Tanzania and Zambia and an Italian company named Intersommer Condrad Spa. The appellant and his colleagues were employees of the Tanzania branch of the company. In August 1985 the shareholders passed a G resolution to liquidate the company. On 26 August 1985 the respondents as liquidators terminated the employment of all the employees except a few. But due to financial difficulties, the liquidators could not pay the employees' terminal benefits immediately. All H that the liquidators could do in the circumstances was to ask all employees to leave for their respective homes but to leave their contact addresses behind through which they could be reached. The appellant said that he and his colleagues could not leave for their homes because they had no money to pay for themselves and their families as well as I freight for their personal belongings. They therefore remained at their respective stations in Dar es Salaam, Iringa and Mbeya. The

respondents were faced with the problem of paying the appellants who were classified A as unsecured creditors ahead of other secured creditors of the company. To get round the problem, the respondents approached one of the shareholders, the Government of Tanzania for a loan equivalent to the sum claimed by the appellants. The Government of B Tanzania agreed and advanced the amount needed to the respondents through the National Transport Corporation. On receipt of this loan, the liquidators paid the appellants all their entitlements which included

salaries and/or allowances and repatriation costs. All these amounted to Shs 32,761,927/=. These payments were C effected in July 1987, ie two years after the payments were due in August 1985 when the company was liquidated. The appellants accepted these payments as representing their full claims and that they had no further claims against the respondents. However, the appellants later became of the view that these payments fell far short of their actual D requirements and lodged fresh claims with the respondents who rejected them, maintaining that the appellants no longer had any claims against them, they having been paid in full all their entitlements. Following the rejection of their additional claims by the respondents, the appellants lodged this claim in the High Court and in para 14 of their E plaint, they stated:

`14. That the plaintiffs are claiming from the defendants a total of Shs 84,779,770/05/= being repatriation costs, luggage allowance and outstation allowance. The plaintiffs are entitled to be paid the same by the defendants because the defendants failed and/or neglected to pay F them their terminal benefits immediately after serving them the notices of termination as required by the law and had a duty to pay them the repatriation costs, luggage allowances and outstation allowances taking into account the devaluation of the Tanzania shilling, increased G transport costs and outstation allowances.'

The appellants also claimed an interest of 30 per cent per annum on the sum claimed from the date of filing to the date of final judgment plus costs. H

We agree with the Trial Judge that the claim as framed was vague although it appears to have been drawn up by a very brilliant lawyer, the late Malingumu Rutashobya. However, in the course of the hearing, the evidence revealed that the appellants were actually I claiming the difference between the repatriation costs including luggage allowances which were paid in July 1987 but calculated at

1985 rates when the company was wound up and the actual costs of repatriation in July A 1987 at the time of payment. The appellants also made it clear that this figure of Shs 84,779,770/05/= includes subsistence allowances for 664 days which they spent while waiting at their respective stations to be paid their entitlements.

At the commencement of the trial, three issues were framed, issues on which would B depend the outcome of the case. These were as follows:

(1) whether the defendants assured the plaintiffs that all terminal benefits would be paid immediately C

(2) whether the defendants requested the plaintiffs to remain at their respective work stations after issuing them with notices of termination

(3) whether the defendants neglected to provide or pay the plaintiff's terminal benefits D

(4) to what reliefs are entitled.

With regard to issues (1) and (2), the appellant who gave evidence as PW1 told the Trial Court: E

`We were informed that the company had been wound up and we were given two weeks' leave. After that the General Manager announced that their services were being terminated and that they would be paid their terminal benefits . . . it was the liquidator who was actually terminating our employment. We were required to leave an address for the purposes of future correspondence. But we did not F leave any addresses because we had not been paid our benefits as employees.'

It is clear that this statement does not contain any suggestion that the respondents as G liquidators promised the appellants that all their terminal benefits would be paid immediately, and also that they were told to remain at their respective stations after being issued with notices of termination pending the payment in full of their claims. In the circumstances, the Trial Judge answered both these issues in the negative. H

With regard to the third issue, the Trial Judge accepted the evidence given by the liquidator Mr Mundolwa, that the respondents as liquidators did not pay the appellants' terminal benefits sooner because of negligence, he said that the appellants' terminal I benefits could not be paid immediately because there was no money, the company was insolvent. He produced documents to establish this

and that on the contrary every effort was made to secure the necessary funds from one A of the shareholders, efforts which enabled the appellants to be paid even ahead of secured creditors. In the circumstances, the judge held that it could not be said that the respondents neglected to pay the appellants their terminal benefits, because there was B no money available for this purpose until after the same was borrowed from one of the shareholders. Accordingly he also answered this issue in the negative.

Having answered all the main issues in the negative, the Trial Judge then proceeded to deal with the last standard ancillary issue, namely to what reliefs are the parties entitled? C In answering this question the judge asked himself whether the appellants' two pronged claim is maintainable in law. The first prong concerned their claim for the difference between the rates of fare and freight charges obtaining on 26 August 1985 when they were computed and July 1987 when the payments were made, arguing that D between these two dates the fares to their homes as well as freight charges had almost doubled. The second prong concerned their claim for subsistence allowances for 664 days they spend waiting to be paid their terminal benefits. The judge held that both these E claims were properly made and are supported by s 53 of the Employment Ordinance, but he dismissed them because they had not been proved as required by the Companies (Winding up) Rules, and that therefore the entire claim was premature.

In this appeal, Mr Semgalawe who appeared for the appellants, filed only one ground of F appeal, namely that the Trial Judge erred in law in holding that the suit is premature and that therefore there was no cause of action. At the hearing of this appeal and in support of this ground, Mr Semgalawe argued that there was no need for further proof of the debt G made up

of additional claims because the liquidator was merely being asked to pay what he had already paid particularly when what was being asked were statutory claims.

On our part we think it was not correct for the Trial Judge to determine the validity of these claims after saying that they were premature. This was virtually pre-empting the H decision of the liquidator. The liquidator should be left free to determine the validity of each debt submitted to him. In our view, the Trial Judge should have based his decision on the reasons he gave at p 131 of his judgment and should not have discussed the validity of the claims in law. In this passage, the judge stated: I

`I agree with Mrs Maajar that whatever claims there may be they

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must be brought in accordance with the Companies (Winding Up) Rules 1929. In para 15 of the A plaint, it is stated that "plaintiffs have repeatedly demanded the aforementioned amount from the defendants but the defendants have refused and/or neglected to pay them the same". This may be so, but that would not be enough because the Companies (Winding Up) Rules 1929 require any debt to be proved by an affidavit verifying the debt. The plaintiffs do not claim to have done so. Therefore B until such proof is done there cannot be any cause of action.'

We agree, and say that the Rules do not make any distinction between debts arising out C of different claims. The original claims were subjected to proof and paid, and additional claims must be treated separately and subjected to the same process of proof under the Rules. This was not done, accordingly we agree with Dr Nguluma, counsel for the respondents that the two claims in this suit amounting to Shs 84,779,770/05/= were D prematurely lodged in court. There is no need to go further than this lest we prejudice any proceedings that may come from the liquidator for proof of these claims.

For these reasons we are satisfied that this appeal has no merit and we dismiss it in its entirety with costs. E

1996 TLR p257

F

[zRPz]CALICO TEXTILE INDUSTRIES LTD AND ANOTHER v TANZANIA DEVELOPMENT FINANCE CO. LTD 1996 TLR 257 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Kisanga JJA, Ramadhani JJA and Mfalila JJA

G

CIVIL APPEAL NO 25 OF 1993 H

26 October, 1995

(Appeal from the Ruling of the High Court of Tanzania,

Dar es Salaam, Kyando J.)

Flynote

Debtor and Creditor - Loan agreement - Debenture to secure such loan - Rectification sought of I amount repayable stated thereon -
1996 TLR p258
When such rectification competent - Section 85 of the Companies Ordinance, Cap 212. A
Law of Limitations - Fraudulent misrepresentation - Effect on limitation of proceedings - Section 26(a) of the Law of Limitation Act.
-Headnote
On 11 September 1992, the High Court (per Kyando, J) ordered the rectification of B certain official forms held by the Appellant's, in which forms a loan amount secured by a debenture was stipulated variously as being US$ 904,000 or Shs. 16,626,500/= or both. The trial Court found that the clear intention of the parties at all material times was that the amount expressed in dollars had been advanced and that accordingly the amount C repayable, as evidenced by the amount secured by the debenture (as well as the relevent official forms), should reflect the amount in dollars only without reference to the Tanzanian shilling equivalent. The Court ordered rectification accordingly.
The First Appellant is the debtor under the loan and debenture, the Second Appellant is D the Registrar of Companies (holder of the official forms) and the Respondent is the creditor in terms of the loan and debenture.
The Appellants appeal against the order of rectification, submitting that the trial Judge erred in law for various reasons in holding that Respondent's application was competent.
Held: E

(i) Since the loan had not been repaid in the full amount expressed in dollars, it could not be said that the debt had already been discharged and thus an application for rectification could be brought.

(ii) The trial Judge was correct in finding that the actual terms of the loan should be established with reference to the document creating the charge, being the debenture, in casu. F

(iii) The trial Judge correctly found, further, that the Second Appellant's certificate of discharge of the debt was invalid and fell to be set aside, since such discharge was based on the repaid amount expressed in shillings, and not in dollars.

(iv) The First Appellant's misstatement in its memorandum to the Second Appellant G to the effect that the debt had been discharged, was a false declaration on its part and amounted to fraudulent conduct.

(v) The period of limitation for the bringing of legal proceedings in the Law of Limitation Act does not begin to run until the victim of fraud has discovered the fraud.

(vi) The application was brought timeously before the trial court since it was H brought within 60 days of the discovery of the First Appellant's fraudulent misrepresentation to the Second Appellant.

(vii) The appeal is dismissed with costs.

Case Information
Ordered accordingly.
Cases referred to: I

1. In re Mechanisations (Eaglescliffe) Ltd [1964] 3 All ER 840

A 2. Lolkilite Ole Ndinoni v Netwala Ole Nebele [1952] 19 EACA 1

3. Nothman v London Borough of Barnet [1978] 1 All ER 1243 (CA)

4. Osman v The United India Fire and General Insurance Company Ltd [1968] EA 102

Ismail, for the First Appellant. B

Salula, Senior State Attorney, for the Second Appellant.

Kameja, for the Respondent.

[zJDz]Judgment

Kisanga JA:

This appeal arises from the decision of the High Court (Kyando J) allowing an application C for the rectification of errors under s 85 of the Companies Ordinance Cap 212.

Briefly the background to the case was as follows: In April 1979 the first appellant, Calico Textile Industries Ltd (hereinafter referred to simply as Calico Textile) and Tanzania Development Finance Company Ltd (hereinafter referred to by its acronym TDFCL) D entered into a loan agreement whereby Calico Textile was to receive from TDFCL a loan of US $904,000 (or the equivalent thereof in other convertible currencies) by way of a foreign currency loan. In point of fact TDFCL was acting essentially as a conduit in an E arrangement whereby it was allowed to borrow from the World Bank for re-lending to feasible projects in Tanzania, and the Tanzanian Government guaranteed repayment by TDFCL to the World Bank. Calico Textile having obtained the said loan, issued a single debenture to TDFCL as security for the principal sum of US $904,000 with interest F thereon. All the moneys, including the principal and interest as secured under the debenture, were repayable in Tanzanian shillings converted to the currency of the loan at the rate of exchange ruling on the date of repayment.

Calico Textile received full payment of the loan as agreed and it started repayment in accordance with the terms of the agreement. Meantime the debenture was, in G compliance with statutory requirement, filed with the second respondent, the Registrar of Companies (hereinafter referred to as the Registrar) for registration as a charge. On its cover page the debenture was shown to be a security `for US $904,000 (or the H equivalent thereto in other convertible currencies) being approximately Shs 16,626,500/=', but in its body it was shown to be a security for a foreign currency loan only; there was no reference to the Tanzania shillings. Also filed with the Registrar in compliance with statutory requirement, was form No 9, being particulars of the said I debenture, and showing that the amount secured was `US $904,000 being approximately Shs 16,626,500/='.

Acting on the information filed the Registrar issued form C2, the certificate of registration A of the charge showing that the debenture secured in favour of TDFCL was Shs 16,626,500/= only; no reference was made to foreign currency. As mentioned earlier, Calico Textile had started

repaying the foreign currency loan on the terms as agreed, B and it continued to do so for some time. The case for TDFCL is that before that loan was fully repaid, Calico Textile on 7 May 1992 filed with the Registrar Form No 10 wherein it declared that the charge as registered, being a debenture to secure Shs 16,626,500/= only in favour of TDFCL, had been satisfied to the extent of Shs C 17,418,438.35/=. Acting on that information the Registrar on the same day issued a certificate to the effect that the debenture was discharged. TDFCL claims that from that time to the time of bringing this action Calico Textile no longer repaid or serviced the foreign currency loan.

The case for TDFCL was that Calico Textile was aware of the misstatement on the D cover page of the debenture, in the particulars on Form No 9 and in the Registrar's certificate of registration Form C2 that the debenture was for Shs 16,626,500/= or approximately that amount while, to its knowledge, the true position was that the debenture was a security for US $904,000 or the equivalent thereof in other convertible E currencies as was expressly stated in the loan agreement and in the body of the debenture. Again Calico Textile knew that it had not fully repaid the foreign currency loan. Thus TDFCL contends that with the knowledge of such misstatement of the particulars of the loan and of the non-payment of part of the foreign currency loan, the declaration by F Calico Textile to the Registrar that the charge had been satisfied was obviously false, and that the Registrar's purported certificate of discharge based, as it was, on such false declaration was necessarily void. In its prayer, therefore, TDFCL asked for an order for the rectification of the misstatement of the particulars on Form No 9 and on the G certificate of registration of Form C2 by deleting therefrom all reference to Shs 16,626,500/= so as to reflect the amount secured by the debenture as being US $904,000 only. As intimated before, the learned Trial Judge granted the application and made orders in the following terms: H

`I grant the application as prayed, with costs to the applicant. The second respondent is hereby ordered to, within fourteen (14) days from the date of the delivery of this ruling, rectify forms No 9 and C2 (plus his register of charges) to show that the amount secured by the Debenture discussed in this I case is US $904,000 (or its equivalent in

other convertible currency) by way of a foreign loan, or, simply US $904,000 without any reference to A Shs 16,626,500/=. The first respondent is ordered also to rectify his register of charges in relation to this loan so that it is shown therein that the Debenture is security for US $904,000 only, as the Debenture itself states.' B

It is from that decision that this appeal is preferred.

In this appeal the first appellant, Calico Textile, is represented by Mr M A Ismail, learned advocate, the second appellant, the Registrar, is represented by Mr S B Salula, learned Senior State Attorney while the respondent, TDFCL is represented by Captain A K C Kameja, learned advocate. Mr Ismail had filed five grounds of appeal but at the hearing he abandoned grounds 1 and 5 and argued the remaining three. Mr Salula filed four grounds but argued only the fourth ground because he abandoned ground 3 while grounds 1 and 2 were covered by Mr Ismail in the

course of his submissions. Therefore D altogether Mr Ismail and Mr Salula argued a total of four grounds which, for convenience are set out and renumbered as follows --

1. The learned judge grossly erred in law in not holding that there could be no E rectification of the debenture/charge as the latter was already satisfied/discharged.

2. The learned judge erred in law in not holding that the application of the respondent was legally incompetent.

3. The learned judge erred in law in not holding that the application was time barred. F

4. The learned judge erred in law in issuing decrees which are not enforceable in law.

The thrust of Mr Ismail's submission on the first ground is that once the charge was G certified by the Registrar on 7 May 1992 to have been discharged, then this application which was filed only subsequently on 29 May 1992 was misconceived. For, as at the date of filing that application the charge no longer existed, and therefore no application for rectification could properly be made in respect of a non-existent charge. Learned H counsel took the view that in the circumstances what TDFCL should have done was to apply to Court to have the charge restored in the first instance after which it was then open to it to apply for the desired rectification of errors in respect of the restored charge.

Mr Ismail who had also represented Calico Textile at the trial had raised this point there I but the Trial Judge rejected it saying in effect

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KISANGA JA

that the purported discharge was invalid in as much as the foreign currency loan had not A been fully repaid. We are in complete agreement with the learned judge on this. There was ample evidence that Calico Textile has not repaid fully the foreign currency loan, and Calico Textile can have been under no misapprehension whatsoever about it. For instance, in para 18 of the applicant's affidavit it was stated that as at the date Calico B Textile made the declaration to the Registrar that the charge had been satisfied, there still remained US $534,736 unpaid by Calico Textile to TDFCL. That averment was not controverted. Indeed both at the trial and during this appeal it was not seriously C contended on behalf of Calico Textile that the foreign currency loan has been fully repaid. Even the grounds of appeal filed in this court do not put forward any such suggestion. Once it was rightly found that the foreign currency loan was not fully repaid, then the High Court judge was entitled to hold, as he did, that the Registrar's certificate of D discharge was invalid as it was based on Calico Textile's false declaration that the charge securing that loan was satisfied, meaning that the loan itself was fully repaid.

There was the related question as to the amount of money secured by the debenture. That question arose because the Registrar's certificate of registration shows that the E debenture was a security for Shs 16,626,500/= only while TDFCL contended that it was for US $904,000 (or the equivalent thereof in other convertible currencies). Mr Ismail appeared to take the view that the Registrar's certificate was conclusive evidence of the amount secured. The learned Trial Judge resolved that question by holding that the F debenture was a security for US $904,000 (or the

equivalent thereof in other convertible currencies). In doing so he cited with approval the decision in the English case of In re Mechanisations (Eaglescliffe) Ltd (1) which said in effect that in order to ascertain the terms and effect of the charge one has to look at the document creating the charge and G not at the register.

Like the Trial Judge we are satisfied that that view correctly represents the law of this country on that point. Applying that principle to the facts of the present case then, it is common ground that both in the loan agreement and in the body of the debenture the H amount of money stated is US $904,000 (or the equivalent thereof in other convertible currencies). The only variation of this appears on the cover page of the debenture wherein it is stated thus: I

`Single Debenture for US $904,000 (or the equivalent thereof in other convertible currencies) being approximately Shs 16,626,500/=.'

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KISANGA JA

It cannot seriously be maintained that the debenture was created as a security for Shs A 16,626,500/= when there was no reference to that sum, or to that currency for that matter, either in the loan agreement or in the body of the debenture itself. Had the parties contemplated Tanzania Shillings as the currency of the loan, they would certainly have B shown this in the loan agreement or in the body of the debenture.

It was submitted on behalf of TDFCL that Shs 16,626,500/= was inserted on the cover page of the debenture only for the purposes of determining the stamp duty which was payable in Tanzanian money upon registration of the debenture. That submission was C not refuted and to our minds it sounds plausible. In any case we are firstly of the view that in ascertaining the terms and effect of the debenture one should not merely look at the title page of the debenture and ignore what is stated in the body of the debenture D itself; rather one should look at the document as a whole which is exactly what the Trial Judge did. In addition the learned judge found that the loan agreement made no reference to Tanzania Shillings. Consequently he came to the conclusion that the debenture was a security for US $904,000 (or the equivalent thereof in other convertible currencies). We are unable to say that he erred. E

In our view, therefore, the Trial Judge rightly found that the Registrar's certificate of discharge of the debenture was invalid in as much as it was based on Calico Textile's false declaration that the debenture was satisfied when it was not. Consequently it was F open to the learned judge to set aside, as he did, the purported discharge certified by the Registrar because it was in fact no discharge at all; it was simply void. We reject Mr Ismail's contention that the proper thing for TDFCL to have done was to apply to Court to have the charge restored in the first instance. For, as we have amply demonstrated, the G charge had not in fact been discharged; and as will be shown later, it was not necessary to bring separate actions, first for setting aside the purported discharge of the debenture and then for rectification of the misstatement.

That disposes of the first ground of appeal. The second ground appears to be a H necessary corollary of the first ground. It alleges that the application by TDFCL was legally incompetent because, as we understand it, the applicant was seeking for rectification of errors in respect of a debenture which no longer existed as it had already been discharged. We have already held that

the debenture in question has not been I discharged and that it is still subsisting. The application was, therefore, legally competent, and this ground of appeal equally fails.

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KISANGA JA

On the third ground alleging that the application was time barred, there was evidence A that the debenture was registered in 1985 while this application was brought in 1992, that is, over six years later. Mr Ismail rightly pointed out that under the Companies Ordinance (Cap 212) no time limit is provided for within which such application should B be brought. However, counsel for both sides rightly took the view that in those circumstances para 21 of Part III of the First Schedule to the Law of Limitation Act applied, in which case the application should have been brought within 60 days of the registration of the debenture. Mr Ismail charged that the application was not brought C within that time limit, nor was there an application to the Court for the extension of that period. Learned counsel, therefore, contended that the application was wrongly entertained and it ought to have been thrown on a preliminary objection.

In response to that submission Captain Kameja contended that the application was not D time barred. In his view the period of limitation did not begin to run against TDFCL, his client, until on 16 April 1992 when the Registrar wrote to TDFCL following its appointment of a receiver in respect of Calico Textile concerning the debenture in question. That, according to Captain Kameja,was the time when TDFCL learnt for the E first time of the misstatement of the registered particulars of the debenture and that that was when time started to run. However, counsel went on, as soon as it was practicable thereafter, ie on 2 June 1992, TDFCL filed this application. All this was duly supported by the affidavit sworn on behalf of TDFCL by its then company secretary, Mr R C J Pesha, F and no counter affidavit or affidavit in reply was filed in response thereto. Then, relying on the provisions of s 26(c) of the Law of Limitation Act, Captain Kameja submitted that the application was brought within 60 days of his client's becoming aware of the misstatement and, therefore, the application was timeous. G

Section 26 says that:

> `26. Where in the case of any proceeding for which a period of limitation is prescribed--
>
> H (a) the proceeding is based on the fraud of the party against whom the proceeding is prosecuted or of his agent, or of any person through whom such party or agent claims; or
>
> (b) the right of action is concealed by the fraud of any such person as aforesaid; or
>
> I (c) the proceeding is for relief from the consequences of a mistake,
>
> the period of limitation shall not begin to run until the plaintiff has

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> A discovered the fraud or the mistake, or could, with reasonable diligence, have discovered it:'

There follows a proviso which, however, is not relevant to the facts of the present case.

We think that Captain Kameja relied on the wrong paragraph of s 26. In our view the B relevant provision here was para (a). First of all it is to be noted that the matter involving this case started off as an innocent misstatement, but at a later stage it assumed the character of

fraud. It began when the Registrar registered the particulars of the debenture as being a security for Shs 16,626,500/= only. This information appeared for C the first time on the cover page of the debenture which, as already noted, stated that the debenture was for US $904,000 (or the equivalent thereof in other convertible currencies) being approximately Shs 16,626,500/=. It again appeared on Form No 9, being the particulars of the charge sent to the Registrar for registration, and showing that D the debenture was for US $904,000 being approximately Shs 16,626,500/=. In registering the debenture, the Registrar obviously misstated the particulars thereof as being security for Shs 16,626,500/= only when in the loan agreement and in the body of E the debenture itself there was no reference whatsoever to Tanzania Shillings, and indeed it was made clear therein that the loan was a foreign currency loan and the debenture was the security for such loan. However, the misstatement by the Registrar was innocent because the Registrar is not shown to be a party who stood to gain from F such misstatement or who assisted another party to gain from such misstatement. So that if the story had ended there then in our view, Captain Kameja for TDFCL could properly have invoked s 26(c) above quoted to say that this was a proceeding for relief from the consequences of a mistake or misstatement. G

The situation, however, changed when Calico Textile, acting on that innocent misstatement, declared in its memorandum to the Registrar that the debenture had been satisfied when, as shown already, it knew fully well that it had not. Such false H declaration was not an innocent misstatement or mistake on the part of Calico Textile. It was a deliberate act whereby Calico Textile took advantage of the Registrar's innocent misstatement of the terms and effect of the debenture and sought to extinguish its liability under the debenture to the detriment of TDFCL. Such conduct was fraudulent. It I could not possibly be said to amount to an innocent misstatement or mistake in the light of the full knowledge by Calico

Textile that the foreign currency loan, for which the debenture in question was a security, A had not been fully repaid.

Thus in terms of s 26(a) above quoted the proceeding involves or is based on the fraudulent conduct of Calico Textile. In other words this proceeding necessarily arose out of Calico Textile's fraudulent misrepresentation to the Registrar that the debenture B had been satisfied. Therefore the issue of limitation in bringing such proceeding must be considered in the light of such fraudulent conduct of Calico Textile. Incidentally it is appropriate to point out here that it would be unnecessary to bring two separate actions, C as canvassed by Mr Ismail, first to set aside the Registrar's purported certificate of discharge which was based on the fraudulent misrepresentation of Calico Textile, and then another one for the rectification of the misstatements or errors. That would amount to a multiplicity of actions involving unnecessary expense in terms of time and money while the end result would be exactly the same. Not only that. Calico Textile's fraudulent D misrepresentation to the Registrar and the misstatement in the particulars of the charge (Form No 9), and in the Registrar's certificates of registration (Form C2) and of discharge are so closely connected that one could not meaningfully talk about them separately. We are increasingly of the view that it was open to the learned High Court E judge

to entertain the application for the rectification of errors and, in the process, to consider the validity or otherwise of the Registrar's certificate of discharge and make the appropriate order.
The question now falling for consideration is, when did the period of limitation begin to F run in this case? The relevant part of s 26 cited above says that:

`the period of limitation shall not begin to run until the plaintiff has discovered the fraud or the mistake, or could, with reasonable diligence, have discovered it' (The emphasis is supplied.) G

The view was taken that the period of limitation began to run on 6 May 1986 when Mr Pesha on behalf of TDFCL received the Registrar's certificate of registration containing the misstatement, because at that point Mr Pesha could, with reasonable diligence, have H discovered the misstatement and hence the fraud underlying the said certificate. We think, however, that that view is untenable. In our view the expression `.. could, with reasonable diligence, have discovered it' refers to mistake only; it does not refer to fraud. I We say so because in our opinion s 26 above quoted, and indeed the law in general, seek to protect victims of fraud, not the

perpetrators of fraud. Now if the above quoted expression is to be given literal A interpretation, it would mean that the period of limitation begins to run when the victim of fraud could, with reasonable diligence, have discovered the fraud. So that a perpetrator of fraud could then set up a defence saying: `Yes, I committed the fraud, but I am not B liable because the victim thereof did not discover the fraud within the limitation period even though he (the victim) could, with reasonable diligence, have done so.' That, in our view, would be totally unacceptable. It is contrary to all principle and good conscience to allow the perpetrator of fraud to enjoy the fruits of his own vice. C

Such interpretation runs counter to the long established principle laid down, inter alia, by the Court of Appeal for Eastern Africa in the case of Lolkilite Ole Ndinoni v Netwala Ole Nebele (2) wherein it was stated: `A cardinal rule of interpretation is that one must, whenever one can, place such interpretation on a statute as will not lead to an absurdity.' D More recently in the English case of Nothman v London Borough of Barnet (3) the Court of Appeal said in effect that the literal rule of statutory construction has been replaced by the purposive approach. That the Courts should adopt such a construction E as will promote the general legislative purpose underlying the statute. And that whenever the strict interpretation of a statute gives rise to an absurd and unjust situation, the judges can and should use their good sense to remedy it, by reading words in, if necessary, so as to do what parliament would have done had they had the situation in mind. F

We are of the settled view that the expression under review in this case is one where literal interpretation of it would lead to absurdity by enabling a perpetrator of fraud to benefit from his own vice, and to cause gross injustice to the victim of the fraud. It G cannot have been in the contemplation of the Legislature to enact such a provision. Consistent with the approach in Nothman's case above cited, therefore, we consider it necessary to read words into the provision

to mean that the period of limitation does not begin to run until the victim of fraud has discovered the fraud. The words `... could, with H reasonable diligence, have discovered it' in that provision are to be limited to mistake. We think this is what Parliament would have done had they had the situation in mind.

We now apply this interpretation to the facts of the present case. As stated before, this was a matter which started off as an innocent misstatement but later developed into a I fraud which eventually sparked off this litigation. In our view the limitation period started

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to run after the discovery of the fraud which sparked off the litigation. A

Mr Pesha discovered the fraud through the Registrar's letter dated 16 April 1992. According to that letter Calico Textile had misrepresented to the Registrar that it had B discharged its obligation under the debenture. It is that discovery which led to the institution of this proceeding by TDFCL's application dated 2 June 1992. We therefore uphold Captain Kameja's submission that the application was timeous because it was brought within 60 days of the discovery of Calico Textile's fraudulent misrepresentation C to the Registrar that it had discharged the debenture, knowing fully well that it had not.

Mr Ismail referred us to s 3 of the Law of Limitation Act and strenuously contended that once the application was found to be time barred, the Trial Judge had no power to D extend the time on his own and proceed to hear it on the merit as he did. In support of such submission learned counsel referred us to the decision of the Court of Appeal for Eastern Africa in the case of Osman v The United India Fire and General Insurance Company Ltd (4). With due respect to the learned counsel, however, the provisions of E the law he has cited and his submissions on the point are all irrelevant because, as we have endeavoured to show, the application here was timeous and, therefore, the question of the Trial Judge extending the time did not arise. The third ground of appeal, therefore, also fails. F

Ground 4 criticises the Trial Judge for issuing decrees which are not enforceable in law. There is some merit in this ground. The learned judge granted the application as prayed, meaning that (a) Form No 9 being the particulars of the charge delivered by Calico G Textile to the Registrar for registration be rectified, and (b) Form C2 being the certificate of registration of the charge issued by the Registrar also be rectified. It is clear that Form No 9 is to be rectified by its author, Calico Textile while Form C2 is also to be rectified by its author, the Registrar. The learned judge, therefore, erred when he went on to order H the Registrar to rectify Form No 9; that form is to be rectified by Calico Textile. However, the error was not fatal because no one was prejudiced thereby. The error is accordingly corrected as indicated above while the rest of the award is affirmed.

In the final analysis, and for the reasons set out herein before, the appeal fails and it is I dismissed with costs.

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[zRPz]HALAIS PRO-CHEMIE v WELLA A.G. 1996 TLR 269 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Nyalali CJ, Mnzavas JJA and Lubuva JJA
B

CIVIL APPLICATION NO 19 OF 1995
27 October 1995
(An application to call for and examine the record of the proceedings, judgment and decree of the High Court of Tanzania, Dar es Salaam, Bahati J.) C
Flynote
Civil Practice and Procedure - Revision - When court's revisional jurisdiction may be invoked - Where appellate process has been blocked by judicial process -- Decision of High Court D dismissing application for extension of time not such a judicial process
Civil Practice and Procedure - Revision - When application must be brought - Application made 10 months after judgment time barred
-Headnote
The applicant applied for revision of a judgment and decree of the High Court. The E respondent filed a preliminary objection contending that the application was incompetent as it did not fall within the provisions of section 4(2) of the Appellate Jurisdiction Act 1978. It appeared that the present application was brought ten months after delivery of the judgment sought to be revised and five months after rejection of the application for extension of time. F
Held:

(i) The Court could, on its own motion and at any time, invoke its revisional jurisdiction in respect of proceedings in the High Court;

(ii) Except under exceptional circumstances, a party to proceedings in the High G Court could not invoke the revisional jurisdiction of the Court as an alternative to the appellate jurisdiction of the Court;

(iii) A party to proceedings in the High Court could invoke the revisional jurisdiction of the Court in matters which were not appealable with or without leave;

(iv) A party to proceedings in the High Court could invoke the revisonal jurisdiction H of the Court where the appellate process has been blocked by judicial process: the decision of the applicant's application for extension of time to apply for leave to appeal did not amount to a judicial process which blocked the applicant's move. The Court of appeal had concurrent jurisdiction with the High Court to grant extensions of time and it was therefore open to the applicant to I come to court to seek extension of time after the High Court had refused it:
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A the reliance on the court's revisional jurisdiction was clearly misconceived.

(v) The application was in any event hopelessly time-barred.

Case Information
Application struck out.
Cases referred to: B

1. Moses Mwakibete v The Editor - Uhuru and two others [1995] TLR 134 (CA)
2. Transport Equipment Ltd v D P Valambhia [1995] TLR 161 (CA)

Mr Ngalo for the applicant. C

Mr Uzanda for the respondent.

[zJDz]Judgment

Nyalali, CJ:

This is an application by Notice of Motion filed by Halais Pro-Chemie Industries Ltd, D hereinafter called the applicant, requesting the Court, `to call for and examine the record of the proceedings, judgment and decree of the High Court of Tanzania at Dar es Salaam Misc Civil Appeal No 8 of 1992 in order to satisfy itself as to the correctness of the adjudication in the aforementioned appeal and for an order nullifying the entire E proceedings in the said appeal on the grounds that the appeal was not properly before the Court and for an order that the respondent pays the costs of this application.'. The respondent to the application is one Wella A G. The application is supported by affidavit deposed to by Colman Mark Ngalo, learned advocate for the applicant. An affidavit in F reply deposed to by Francis Uzanda, learned advocate for the respondent, was subsequently filed. Thereafter a preliminary objection was filed on behalf of the respondent stating inter alia that: G

`... the application is incompetent as it does not fall within the provisions of s 4(2) of the Appellate Jurisdiction Act, 1979, No 15 of 1979 as amended by s 2 of the Appellate Jurisdiction (Amendment) Act, 1993, No 17 of 1993, and as such the application be struck out with costs.' H

When the application came up for hearing on 18 August 1995, we heard arguments from both sides concerning the preliminary objection. As at some point of the hearing, learned counsel for the applicant relied on authority which he promised to produce later, we I decided, at the conclusion of the hearing, to reserve our final decision to a future date to be notified to the parties. We have now

received the authority thus promised. It is Moses Mwakibete v The Editor-Uhuru and two A others (1).

From the affidavits filed in this case and the submissions made before us by counsel on both sides, there is no dispute that after the High Court at Dar es Salaam delivered its judgment on 1 July 1994 in Civil Appeal No 8 of 1992 between Halais Pro-Chemie B Industries Ltd and Wella AG, the applicant gave notice of appeal to the Court of Appeal against that judgment. The notice was lodged in the High Court on 11 July 1994 and was filed in this court on 14 July 1994. Thereafter on 9 September 1994, the applicant filed in the High Court an application for extension of time to apply for leave to appeal to this C court as required by law. That application was dismissed by the High Court with costs on 9 January 1993.

On 8 May 1995, that is about 10 months after delivery of the judgment sought to be revised, and five months after rejection of the application for extension of time, the D present application was filed in the court.

The issue before us is whether the present application is competent. Ever since this Court was invested with revisional jurisdiction by the Appellate Jurisdiction Act, 1979 as amended, the issue of competency appears to have been raised and decided upon in at E least two cases. The first one is Mwakibete's case, (supra). The second one is Transport Equipment Ltd v D P Valambhia (2). In Mwakibete's case, this Court stated, inter alia:

F `The revisional jurisdiction of this Court is provided by the Appellate Jurisdiction Act (Amendment) Act 17 of 1993-s 2(2) and (3). The jurisdiction in ss (2) is exercised either in the course of hearing an appeal or incidental to an appeal. Subsection (3) enables this Court to call for and examine the record of any proceedings before the High Court for the purpose of satisfying itself as to the G correctness, legality or propriety of any finding, order or any other decision made thereon and as to the regularity of any proceedings in the High Court ...

Before proceeding to hear such application on merits this Court must satisfy itself whether it is being properly moved to exercise its revisional jurisdiction. The revisional powers conferred by ss (3) were H not meant to be used as an alternative to the appellate jurisdiction of this Court, unless it is acting on its own motion, cannot properly be moved to use its revisional powers in ss (3) in cases where the applicant has the right to appeal with or without leave and has not exercised that option ...' I

Further on this Court stated:

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NYALALI CJ

A `In our view this Court can be moved to use its revisional jurisdiction under ss (3) only in cases where there is no right of appeal or where there is, it has been blocked by judicial process. Lastly where such right exists but was not taken, good and sufficient reason are given why no appeal was lodged.' B

In the case of Transport Equipment Ltd (supra) which appears to have been decided without reference to Mwakibete's case, this Court stated, inter alia:

`The appellate jurisdiction and the revisional jurisdiction of this Court are, in most cases, mutually C exclusive. If there is a right of appeal then that has to be pursued and, except for sufficient reason amounting to exceptional circumstances, there cannot be resort to the revisional jurisdiction of this Court. The fact that a person through his own fault has forfeited that right cannot, in our view, be D automatic right of appeal then he can use the revisional jurisdiction after he has sought leave but has been refused. However, the Court may, suo motu, embark on revision whether or not the right of appeal exists or whether or not it has been exercised in the first instance.'

We think that Mwakibete's case read together with the case of Transport Equipment Ltd E are authority for the following legal propositions concerning the revisional jurisdiction of the Court under ss (3) of s 4 of the Appellate Jurisdiction Act, 1979:

(i) The Court may, on its own motion and at any time, invoke its revisional F jurisdiction in respect of proceedings in the High Court;

(ii) Except under exceptional circumstances, a party to proceedings in the High Court cannot invoke the revisional jurisdiction of the Court as an alternative to the appellate jurisdiction of the Court; G

(iii) A party to proceedings in the High Court may invoke the revisional jurisdiction of the Court in matters which are not appealable with or without leave;

(iv) A party to proceedings in the High Court may invoke the revisional jurisdiction of the Court where the appellate process has been blocked by judicial process.' H

The matter before us clearly does not fall under propositions (i), (ii) and (iii). Does it fall under proposition (iv)? Can it be said that the decision of the High Court dismissing the applicant's application for extension of time to apply for leave to appeal amounts to a I judicial process which blocked the applicant's move? We do not

think so. Under the provisions of rr 8 and 44 of the Tanzania Court of Appeal Rules, A 1979, the Court of Appeal has concurrent jurisdiction with the High Court to grant extensions of time, and it was thus open to the applicant to come to the Court to seek extension of time after the High Court refused to grant it. Instead of doing so, the applicant now seeks to invoke the revisional jurisdiction of the Court. This move is B clearly misconceived. This position is underscored by the fact that the Notice of Appeal is still lying idle in this Court. The present application is obviously incompetent.

There is another basis which renders this application incompetent. As already C mentioned, this application for revision was made about 10 months after delivery of the judgment sought to be revised. In our considered opinion, this application is hopelessly time-barred. Under the provisions of s 3 read together with the First Schedule to the Law of Limitation Act, 1971 (Act 10 of 1971), specifically para 21 of the First Schedule, the D period within which an application like this one ought to have been instituted is 60 days. By any standard, a 10 months' delay is too late. Obviously this application is not properly before us and we are bound to strike it out with costs and we so order. E

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[zRPz]AUGUSTINE LYATONGA MREMA AND OTHERS v ATTORNEY-GENERAL AND OTHERS 1996 TLR 273 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Maina J, Kyando J, Mackanja J
G

MISC CIVIL CAUSE NO 59 OF 1995
13 November H
Flynote

Elections - Election petition - Supporting affidavit - Facts asserted not in personal knowledge of deponent - Affidavit not conforming to provisions of Order XIX rule 3(1) of Civil Procedure Code

Elections - Election petition - Jurisdiction of High Court to enquire into election of President - Jurisdiction ousted by article 41(7) of Constitution

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-Headnote

The petitioners sought declaratory orders in the High Court that the whole electoral A process nationwide be nullified; that the electoral Commission be reconstituted after some condition was fulfilled; that fresh general elections be held nationwide; that the third and fourth respondents be barred from participating in any elections for five years; and for ancillary relief. The petitioners contended that the misconduct complained of had B been made throughout the country and in almost every constituency; that the Presidential election was involved in the petition; and that once a Presidential candidate was declared elected, the jurisdiction of the Court was ousted.

The respondents raised preliminary objections that the application was incompetent C because the supporting affidavit did not conform with the provisions of order XIX rule 3(1) of the Civil Procedure Code; that the application should be dismissed because on a balance of convenience the second respondent would suffer greater injury than his adversaries; and that the petitioners had not shown that they were likely to succeed in D their petition. It was contended that the founding affidavit contained assertions of fact which were not in the deponent's personal knowledge.

Held:

(i) What was contained in the the founding affidavit was knowledge obtained by the deponent from other people who allegedly witnessed the misconduct. In those circumstances the affidavit did not comply with rule 3(1) which required E the affidavit to be confined to facts of which the deponent had personal knowledge. Where an affidavit was based on the deponent's beliefs, grounds for such beliefs had to be disclosed. Failure to disclose the source of information rendered the affidavit defective. The petition had to fail on this ground alone.

F (ii) Article 41(7) of the Constitution, in unambiguous language, ousted the jurisdiction of the High Court to inquire into the election of the President once the National Electoral Commission had declared the election results. If it was necessary to vest in the court powers it was asked to exercise, then Parliament should have made it clear in the Constitution in relation to this very important matter. G

Case Information

Petition dismissed with costs.

Cases referred to:

1. Ibrahim Mancharle Marwa v The Attorney General and the Director of Elections Civil Case No 3 of 1995 (unreported) H

2. Salima Vuai Foum v Registrar of Co-operative Societies and three others Civil Appeal no 36 of 1996 (unreported)

3. Lakshminarasmhiah and others v Yorakki Gowder [1965] AIR 310

Dr Lamwai and Mvungi for the Petitioners. I

Mr Salula, Mr Mwidunda and Mrs Katinda for the First and Second Respondents.

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MACKANJA, J

Mr Kapinga for Third Respondent. A

Mr Muccadam for Fourth Respondent.

[zJDz]Judgment

Mackanja J:

This is an application of great public interest. We are asked by the applicants to order the Director of Elections, the second respondent, not to declare any results in the B on-going general elections pending the final determination of the petition which is the genesis of this application. We are also asked to order the said Director of Elections not to proceed with the conduct of elections in Dar es Salaam Region pending the C determination of the said petition.

The matters we are called upon to decide will be put in clearer focus after a brief reference to the pleadings in the petition. According to para 1 of the petition Mr Augustino Lyatonga Mrema, Professor Ibrahim Lipumba, and Mr John Cheyo, the first, second and D third petitioners, respectively, are presidential candidates for NCCR-MAGEUZI, CUF and UPD, in that order. Chief Abdallah Fundikira, Flora Kambona, Thomas Ngowi, Wilfrem Mwakitwange and Emanuel Makaidi, the fourth, fifth, sixth, seventh and the eighth petitioners are, in terms of para 2 of the petition, registered voters of political E parties listed as UMD, TADEA, NCCR-MAGEUZI, PONA and NLD. And the ninth, tenth, eleventh, twelth, thirteenth, fourteenth and fifteenth petitioners are, in terms of the third and the fourth paragraphs, officials of various ranks of NCCR-MAGEUZI, CUF, TADEA, F UPDP, NAREA and CHADEMA political parties. The petitioners are alleging a number of irregularities which, in their contention, have rendered the 29 October Presidential and Parliamentary elections not free and fair. They seek declaratory orders in the manner claimed in para 12 of the petition, namely that the whole electoral process nationwide be nullified; that the Electoral Commission be reconstituted after some condition is fulfilled; G that fresh general elections be held nationwide; that the third and fourth respondents be barred from participating in any elections for five years; the usual claim for costs; and the traditional prayer for any reliefs this Court may deem fit to award. H

In these proceedings Dr Lamwai and Dr Mvungi advocate for the petitioners. Mr Salula (Senior State Attorney), Mr Mwidunda and Mrs Katinda (State Attorneys) appear for the first and second respondents; Mr Kapinga appears for the third respondent and Mr I Muccadam appears for the fourth respondent. Although all the respondents were served with the chamber summons with which

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the application was instituted, Dr Lamwai has made it clear during his submissions that A the relief his clients seek is directed at the second respondent.

As is the practice of this court this application is supported by an affidavit. In this case the supporting affidavit was sworn by Willy Ringo Tenga, the Acting General-Secretary B of the NCCR-MAGEUZI. He appears in these proceedings as the ninth petitioner. He swears partly on matters which form the subject of the petition, and partly, according to para 4 of that affidavit, that they have been compelled to bring the petition at this stage on the following grounds: C

(a) that the misconducts complained of in the petition have been made throughout the country and practically in every constituency;

D (b) that the Presidential election is involved in the petition; and

(c) that once a presidential candidate is declared elected, the jurisdiction of this Court is ousted.

Dr Lamwai has argued very forcefully in support of the application, especially as regards E the evidential quality of the affidavit which supports the application. He contends that according to para 3 of that affidavit the elections were illegal and that they were not free and fair. He realises the normal practice of filing petitions under s 108 of the Elections Act but he contends that it became necessary for them to file a petition respecting the F entire presidential and parliamentary elections because art 41(7) of the Constitution of the United Republic of Tanzania ousts the jurisdiction of this Court once a presidential candidate has been declared a winner. If, therefore, the equitable order they seek from this Court is not issued, this Court will cease to have jurisdiction to hear any petition G against the President's election. When he was asked from what law this Court derives power to declare the general elections null and void in one petition, Dr Lamwai responded by saying that the Court derives that inherent power from s 2(2) of the H Judicature and Application of Law Ordinance which confers on this Court unlimited civil jurisdiction. Thus if, in his view, it is found that the whole general election is irregular, then the entire electoral process and its results should be nullified. He has drawn our attention to para 9 of the petition under which all the alleged irregularities are listed. At I some stage in his submissions, however, Dr Lamwai abandoned his application for a restraining order against the declaration of

results involving parliamentary candidates because almost all the results are out by now. A So we are left with the President and the Dar es Salaam elections.

As regards the presidential elections, it is the contention of Dr Lamwai that it is not the intention of the Constitution, nor of the law, to close the Court's jurisdiction in declaring a B president who is not elected in a free and fair election. He therefore urged that the case be concluded before the general elections for Dar es Salaam Region are held, presumably if the petition will succeed. For if those elections are conducted before the determination of the petition, the whole proceeding will be superfluous. It is their C complaint that the President will not be elected lawfully during the ongoing elections and that the nation should not be compelled to live with a president who is forced upon it. So that the election of another president would rather be delayed as no vacuum in the presidency will thereby be created. The incumbent President has, according to Dr D Lamwai, and we think he is right, all the

constitutional authority until he hands over the reigns of power to the presidential candidate who will be declared the winner. So His Excellency President Ali Hassan Mwinyi will be constitutionally in power until another president is elected. In a country which has respect for the rule of law, however, the E delay in electing another president should not be inordinate.

Now, there are several conditions-precedent before the applicants can succeed. Dr Lamwai has cited Ibrahim Mancharle Marwa v The Attorney-General and the Director of Elections (1) where this Court (Mapigano, J) recently held that one of those conditions is F that there must be a serious question to be tried on the facts alleged, and a probability that the plaintiff will be entitled to the relief prayed in the substantive claim. It is learned counsel's submissions that they have a strong case if they are given an opportunity to lead evidence in proof of the allegations which are contained in para 9 of the petition. G

It is the contention of the petitioners that the Dar es Salaam elections will be illegal because they contravene s 67(1) of the Elections Act in that the power to postpone an H election is conferred on a returning officer. Learned counsel's attention was drawn to the fact that the Dar es Salaam elections are not covered in the petition. He responded by saying that he has covered those elections in his arguments because his clients have as one of their prayers to have the National Electoral Commission dissolved and I reconstituted, which means that the Commission cannot therefore conduct the elections. We doubt if this contention is sound.

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MACKANJA J

It is the further contention of Dr Lamwai that the petitioners will be prejudiced if the Dar A es Salaam elections are conducted because the irregularities they complain of in the petition have not been rectified. As well as that, it is the petitions' contention that parliamentary election results so far declared create prejudices in the electorate in B favour of the winning political party. Dr Lamwai has ruled out the possibility of the electorate being sympathetic with the political parties which appear not to have done well in the elections so far.

Mr Salula has opposed this application very strongly. He raised several grounds in C addition to the three preliminary objections which are contained in the affidavit of Alex Banzi who swore it on behalf of the second respondent. Two of the preliminary objections were abandoned after Dr Lamwai dropped his clients' prayer which related to an order which was intended to restrain the second respondent from declaring D Parliamentary election results. We had, however, directed earlier on in these proceedings that what was brought as preliminary objections could be pursued by Mr Salula in his submissions when arguing the main application for injunction. Suffice it to say at the moment that Mr Salula contends, on the basis of the remaining ground of E what constituted the three preliminary objections, that the application is incompetent because the supporting affidavit does not conform to the provisions of Order 19, Rule 3 of the Civil Procedure Code. Secondly, he argues that the application should be dismissed because, on a balance of convenience, the second respondent would suffer F greater injury than his adversaries. Thirdly, that the petitioners have not shown that they are likely to succeed in their petition. We have decided to dispose of these issues one after another.

It is Mr Salula's contention that Dr Tenga's affidavit contains assertions of fact which are G not in his personal knowledge. He submits that the matters Dr Tenga deponed on could not have been in his personal knowledge because he was all the time around in Dar es Salaam. So that he could not, unless he was informed by someone else, have known that there was misconduct throughout the country and practically in every H constituency as he asserts in para 4(a) of his affidavit.

We agree with Dr Lamwai that what is contained in Dr Tenga's affidavit is evidence which cannot be assailed by learned counsel's statement from the Bar as Mr Salula does. But that is far from saying that the credibility of a deponent, much the same I position as applies to a witness, cannot be put under scrutiny. We know that

like all human beings, Dr Tenga is not omnipresent. He has not sworn that he visited A every polling station, let alone every constituency, to see for himself and to acquire personal knowledge of the alleged misconducts. If he therefore came to know of any misconduct it must have been in his official capacity as Acting General Secretary of B NCCR-MAGEUZI. He therefore acquired knowledge of what is contained in para 4(a) of his affidavit from other people; from people who allege to have witnessed the misconduct, if any. We are satisfied that in those circumstances the affidavit does not conform to the clear provisions of Order 19, Rule 3(1) of the Civil Procedure Code which C lays down a mandatory condition that:

> `3 ...
>
> (1) Affidavits shall be confined to such facts as the deponent is able of his own knowledge to prove, except on interlocutory applications on which statements of his belief may be admitted: D
>
> Provided that grounds thereof are stated.'

It is a statutory requirement that where an affidavit is based on the deponent's beliefs, grounds for such beliefs must be disclosed. So also, it is now settled law in this country that where an affidavit is based on information received from others, the source of that E information must be disclosed. Decisions of the Court of Appeal and this Court on this issue abound, but the most recent authority is the Court of Appeal decision in Salima Vuai Foum v Registrar of Co-operative Societies & Three Others (2). Their Lordships had this to say at p 4 of their typed judgment: F

> `The principle is that where an affidavit is made on (an) information, it should not be acted upon by any court unless the sources of the information are specified ...' G

Failure to disclose the source of information renders the affidavit defective. Since the affidavit which supports this application is incurably defective the application has been rendered incompetent. It would fail on that account alone. H

In his second ground Mr Salula submits that some of the applicants have not shown how they will be injured if their application for an injunction is refused. They are not vying for the presidency, he contends. It is his view that even those who are contesting in the presidential election cannot establish any injury. How do they know that they will lose in I the election

before the Electoral Commission declares the results? So on a balance of convenience who, between

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MACKANJA J

the litigants, will be adversely affected? The second respondent contends that the A Government has already suffered greatly in financial terms. Hence Mr Salula submits that there is evidence from paras 10 and 11 of Alex Banzi's counter affidavit which shows that so far the Government has spent some forty billion shillings for running the B ongoing electoral process and that it has already spent another sum of over two billion shillings for the preparation of the Dar es Salaam rerun of general elections. We understand this plea as being a forbidding reason for another general election if the ones in progress are to be nullified and that, therefore, the second respondent will suffer C immense financial hardship were the electoral process to be reversed.

Dr Lamwai does not believe that the government has spent all that money as claimed by the second respondent. Even if the money was spent, he argues, it is like a person who D broadcasts grain seed on rocks; it will not germinate. He submitted, quite correctly, in our view, that democracy has a high price. We, however, do not agree with him on all the indicia of that price as regards our political circumstances. For he went on to make remarks which were loaded with veiled threats of violent repercussions if a decision was E not reached that will be acceptable to the followers of his clients. We have been alarmed by that remark but we will leave it rest there for the moment. We intend to declare our position on it at a later stage. We, however, agree with Dr Lamwai that it will be a black day indeed for this proud country if a government will be thrust upon the F nation through corrupt, fraudulent and rigged elections for fear of nullifying electoral results by reason only of money spent to conduct proved sham elections. Of course the onus to prove that the elections have been rigged in favour of any of the participating parties is upon whoever alleges so. In fact, this application is not the right opportunity at G which any alleged impropriety in the conduct of the general elections can be pursued. It is our considered opinion, nonetheless, that democracy which is expressed through free and fair elections at regular intervals, cannot be compromised for fear of expenses. General elections are a noble and worthy cause on which public funds and resources H must be put to use for the benefit of the public good. That is why it is absolutely necessary that money must be spent to prepare and conduct free and fair elections. It is for these reasons that we find Mr Salula's contention in this behalf wholly untenable. I

We have, earlier on in this ruling, observed that the petitioners contend that they have a good case and that, therefore, their prayer

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MACKANJA J

for an injunction restraining the second respondent from declaring Presidential Election A results and from conducting elections for the Dar es Salaam Region should be granted. In particular, they argue through their advocate that the court will cease to have jurisdiction in this matter as article 41(7) of the Constitution ousts that jurisdiction. Mr Salula concedes this

constitutional limitation; he argued, however, that the petitioners B can question the validity of article 41 of the Constitution in Court. He concluded his submissions by inviting this court to consider decisions in other jurisdictions which are relevant to this case. He cited India as one of those jurisdictions. C

Mr Kapinga submits that the applicants have a duty to adduce evidence in proof of their claims. The only evidence there is, he observes, is the affidavit of Dr Tenga. We have no doubt Mr Kapinga is correct in his submissions. For as he contends, para 3 of that affidavit does no more than saying that: D

`... we are raising several grounds which go into showing the illegality of the whole electoral process and the fact that they were not free and fair.'

These are mere allegations which afford no proof to the claims. What is more they are E claims contained in an affidavit which has been found to be incurably defective. We do not see anything in Dr Lamwai's further submissions which tends to show an improvement in the evidential quality of that affidavit. Nevertheless it is imperative that whoever alleges the existence or the non-existence of a set of facts has a duty to lead F evidence in proof of those facts. This rule of evidence is equally applicable to applications such as this one. More importantly, courts in this country have always been cautious in their approach in considering applications for restraining orders such as is the case here. We think this is a sound approach because as it was observed in the G Indian case of Lakshminarasmhiah and Others v Yorakki Gowder, (3) at 312 while quoting an excerpt from 28 American Jurisprudence at 217,

H `... The extraordinary character of the injunctive remedy and the danger that its use in improper cases may result in serious loss or inconvenience to an innocent party require that the power to issue it should not be lightly indulged in, but should be exercised sparingly and cautiously only after thoughtful deliberation, and with a full conviction on the part of the court of its urgent necessity. In I other words the relief should be awarded only in clear cases, reasonably free from doubt, and, when necessary, to prevent great and

A irreparable injury. The Court should therefore be guided by the fact that the burden of proof rests upon the complaint (sic) to establish the material allegations entitling him to relief.'

This is a sound proposition of law which we intend to apply to the facts in this application. B

It has been argued for the applicants that there is justification for the injunctive remedy because their chances of success are overwhelming and that there is a serious question to be determined. Dr Lamwai has pointed out several instances which he considers pertinent, namely that elections were not conducted on one day; that up to C now elections are going on. Maybe it is so, but these are statements which were made from the Bar: They do not constitute evidence and the issues they raise do not appear in the affidavit which supports the application. We are, after a careful consideration of the law and the application as whole, satisfied that the applicants have failed to show the D existence of any serious question which is to be determined in the petition. And, in any case, we find it difficult to say affirmatively that the petitioners have a strong case in respect of which, on the facts, there is a probability of succeeding in their

enterprise. We E base this conclusion on the following grounds: Firstly, the petitioners have not shown how, individually or as a group, they are going to suffer any mischief or any hardship should the presidential elections results be declared or should the Dar es Salaam Region elections be held. Secondly, no proof has been led to show that who, of the F presidential candidates, will win. Thirdly, as Dr Lamwai correctly pointed out at some stage in his submissions while referring to Marwa's case (supra), the applicants must show that on the facts alleged there is a serious question to be determined.

Finally we have to consider if we are vested with the necessary jurisdiction to issue the G equitable remedy in the form of a restraining order which is sought. We are fully aware that jurisdiction is a creature of legislation. Dr Lamwai referred us to s 2(2) of the Judicature and Application of Laws Ordinance which gives to this Court unfettered civil jurisdiction in cases where there are no specific provisions. We agree with him in H principle generally, but we find specific provisions in the Elections Act, 1985 which confer jurisdiction on this Court in respect of specified electoral issues. On the other hand, however, article 41(7) of the Constitution is unambiguous language, ousts the jurisdiction of this Court to inquire into the election of the President once the National I Electoral Commission has declared the election results. It provides

A `41 ...

(7) Iwapo mgombea ametangazwa na Tume ya Uchaguzi kwamba amechaguliwa kuwa Rais kwa Mujibu wa ibara hii, basi hakuna Mahakama yeyote itakayokuwa na mamlaka ya kuchunguza kuchaguliwa kwake.' B

Whereas, therefore, article 41(1) to (7) of the Constitution makes provision for the election of the President, it does not grant jurisdiction to any court to inquire into the fact of that election. We are mindful of the fact that the duty of this Court is to interpret and to implement the law as we find it and not to question the validity of that law unless a C petition has been lodged in the appropriate manner, the purpose of which is to challenge the validity of a particular piece of legislation. It is therefore open to the applicants to see how they can challenge article 41(7) of the Constitution. In the meantime, it is our view that if it was necessary to vest in this Court powers we are asked to exercise, then D Parliament in its undoubted wisdom should have made it clear in the Constitution in relation to this very important matter.

Apart from the foregoing, reference was also made to the applicability of s 11 of the Government Proceedings Act. We have considered those provisions but we do not see, E in view of the above observations, the relevance of that piece of legislation to this application. We will not make any further comment on it.

There are three more issues we have to cover. One of them relates to Mr Muccadam's affidavit. We rejected that affidavit but we reserved our reasons. The following are our F reasons. It is undisputed that Mr Muccadam is an advocate of this Court and courts subordinate to it. He is empowered by Order 3, Rule 1 of the Civil Procedure Code to appear and to act for litigants. In that connection he is empowered to swear affidavits in relation to matters which arise from the

conduct of cases and on matters which are not G in the personal knowledge of his clients. As we have seen Order 19, Rule 3 requires that affidavits should be confined to such facts as the deponent is able of his own knowledge to prove; the only exception being on interlocutory applications where statements of belief may be admitted subject to the condition that the grounds for such H belief are given. In the instant case all matters on which Mr Muccadam deponed are in the personal knowledge of the fourth respondent's trustees.

We therefore rejected that affidavit because it did not conform to the statutory I requirements as laid down under Order 19, Rule 3 of the Civil Procedure Code.

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MACKANJA J

Another matter we have found necessary to address is Dr Lamwai's conduct in court. At A one stage during his submissions a question was put to him and he gave a very unexpected answer. He wanted the Court to tell him whether to answer that question in his capacity as a politician or as an advocate. We did not expect that Dr Lamwai, a B distinguished advocate of this Court, would have wanted to turn a session of the High Court into a political circus. We consider that attitude as being very discourteous to this Court and we do not expect him to behave in the manner he did.

What is more grave, however, is when he informed the Court during his submissions C that followers of his clients will not accept a decision which will not be in their favour! We consider those remarks to constitute an act of intimidation of this Court and an interference in the due process of the law. Those remarks will not in any way influence our decision one way or the other; we reaffirm our resolve to dispense justice fairly, D without fear or favour. In the same vein we decry and deprecate any act which, though unwittingly, will have the effect of inciting members of the public to disobey the constitutional authority of this Court. We are satisfied, however, that Tanzanians are a peaceful people who are sufficiently mature politically and who will not be influenced by E those unfortunate remarks.

For the reasons we have given, the application for the two injunctive reliefs, which are:

F (1) an order to restrain the second respondent, the Director of Elections, from declaring the Presidential elections in the on-going general elections, and

(2) an order to restrain the same second respondent from conducting the elections for Dar es Salaam Region; G

is dismissed with costs.

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A

[zRPz]E R MUTAGANYWA v AHMED J ALADIN AND OTHERS 1996 TLR 285 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Maina J

B

MISC CIVIL CAUSE NO 13 OF 1995

15 November 1995

Flynote

Civil Practice and Procedure - Appeals - Stay of execution pending appeal - Court cannot C entertain application where no appeal filed - Order XXXIX Rule 5

-Headnote

The applicant applied for a stay of execution of the judgment of the Principal Resident Magistrate, Kisutu pending an appeal against the judgment. The respondents raised a D preliminary objection that the application was defective as there was no appeal.

Held:

(i) Order XXXIX rule 5, which gave the court power to grant a stay of execution pending appeal contemplated that an appeal had been filed: the court could not E entertain an application for a stay where no appeal had been filed.

Case Information

Application dismissed.

Case referred to:

1. Ujagar Singh v Runda Coffee Estates Ltd [1966] EA 263 F

Applicant in person.

Mr Majithia for the respondents.

[zJDz]Judgment

Maina, J: G

The application before this Court is for stay of execution pending appeal. At the commencement of the hearing, Mr Majithia raised a preliminary point, that the application should be dismissed because when it was filed, there was no appeal. He referred the court to the decision of the Court of Appeal in Ujagar Singh v Runda Coffee H Estates Ltd (1) that `an appeal must be in being before an application for stay can be entertained by the Court appealed from'.

On his part, the applicant said that he could not file an appeal immediately because he had not been supplied with a copy of the proceedings and ruling of the Principal Resident Magistrate. He admitted that he only gave notice of appeal but he had not filed I an appeal.

1996 TLR p286

MAINA J

There is no dispute that the applicant had not filed an appeal when he applied for stay of A execution. The application was made under Order 21 Rule 24(1) and Order 57 Rule 1 of the Civil Procedure Code, but as Mr Majithia submitted the Principal Resident Magistrate dealt with three provisions exhaustively. They are not relevant to the B application before this Court. Order 24 deals with stay of execution by a Court which issued the decree. The relevant provision on stay of execution pending appeal is Order 39 Rule 5 of the Civil Procedure Code. I agree with Mr Majithia that a court cannot entertain an application for stay of execution pending appeal when no appeal has been C filed. But as the applicant pointed out, he filed the appeal immediately after he obtained certified copies of the proceedings and ruling of the district court

I think it is pertinent to state here that the dispute between the parties is over tenancy of premises which belong to the second respondent, the National Housing Corporation. D The

applicant is in possession of the premises. He resists the eviction, and his appeal filed after this application was filed, is against the decision of the district Court which dismissed his application for stay of execution.
In my view, Order 39 Rule 5 of the Civil Procedure Code which gives power to the Court E to grant a stay of execution pending appeal contemplates that an appeal has been filed and the appellant then seeks the order for stay of execution. If there is no appeal filed, there cannot be a basis to apply for stay of execution. It is true that the applicant filed the appeal after this application was filed. But as the Court of Appeal said in the case of F Ujagar Singh v Runda Coffee (supra) the Court cannot entertain an application for stay of execution where no appeal has been filed.
The preliminary objection is upheld, and the application is dismissed.
1996 TLR p287
A
[zRPz]ERNEST ANDREW CHITALIKA v FRANCIS PHILIP TEMBA 1996 TLR 287 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Bubeshi J
B

CIVIL CASE NO 68 OF 1995
21 November 1995
Flynote
Company law - Winding up - When just and equitable that company be wound up - Directors not C on speaking terms - Sections 163, 167, 172 and 173 of Cap 212
-Headnote
The applicant sought the winding up of a company of which he had been a director. He D alleged that there were only two directors and that the relationship between himself and his fellow director had broken down to the point where they were unable to function.
Held:
(i) The Court was empowered to wind up a company where the Court was of the opinion that it was just and equitable to do so. In the present case where the E former directors were not on speaking terms and each accused the other of fraud, it was just and equitable that it be wound up.
Case Information
Ordered that the company in question be wound up.
No case referred to. F
Mr Lyimo for the Petitioner.
Respondent in person.
[zJDz]Judgment
Bubeshi J: G

The petitioner Ernest Andrew Chitalika has filed this chamber summons for winding up of a company pursuant to s 163 as read together with ss 167(d), 172 and 173 of Cap 212. The grounds for this application are stated in the petition filed. I shall reproduce the salient features of the petition as follows: H

-- that the petitioner is one of the only two directors and shareholders who appear in this petition, of a company known as Safe Business and Construction Company Ltd which is to be wound up by this Court. I

-- that the respondent in this petition made impossible as to the

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BUBESHI J

A existence of the said company by `disqualifying' the petitioner no longer to be one of the directors by his letter dated 22 June 1994 herein attached as Annexure A. In fact his utterance that the other director was disqualified led the respondent to hold privately the property of the said company, namely M/V Land B Rover 109-with registration No UJ 2203, concrete vibrator, vacuum pump and an electric drilling machine. These properties are valued at Shs 12,495,000/= in total.

-- that a demand note was sent to the respondent which so far has not been successful as expected, showing that the respondent is not ready to settle this C dispute out of Court. The said demand note was sent to the respondent by post under the power of attorney of one Joseph Mihayo, which were conferred to him, by the petition in this suit. A certificate of posting a registered mail is annexed hereto as Annexure B.

D -- that the petitioner avers that Safe Business and Construction Company Ltd, under the directorship of the petitioner and respondent in this petition, and the same persons are the only subscribers to the Memorandum and Articles of Association as verified by a letter by one Mahingile, a Senior Assistant Registrar of Companies-his letter is Annexure C. E

-- that the respondent unlawfully and contrary to the company's regulations, after he had written the aforementioned letter of disqualification, swindled company's fund to the amount of Shs 1,350,000/= without the consent of the petitioner as F shown by bank statements-Annexure D. The petitioner in this case cautioned the bank with a letter dated 1 December 1994-Annexure E.

-- that the company incurred some costs for the maintenance of the said M/V Land Rover UJ 2203 amounting to Shs 718,950/= as per Annexure F. G

-- that the cause of action has arisen in Dar es Salaam within the jurisdiction of this court; given the fact that the petitioner demands the respondent to surrender property of the said company valued at Shs 13,845,000/=. H

The petitioner is praying for

(a) an order of the court declaring the winding up of the aforementioned company;

I (b) an order that the said property as per paras 4 to 7 of the petition be surrendered by the respondent.

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BUBESHI J

A (c) an order that the respondent pays to the petitioner costs of this application.

-- an order that the respondent pays to the petitioner interest at the court's rate of interest on the decretal amount from date of filing of this petition to the date of full settlement. B

-- any other relief as this court may deem fit to grant.

Mr Lyimo, who appeared for the petitioner, argued with some force that the existence of the company is not untenable. It was Mr Lyimo's argument that this company had initially C two directors-the petitioner and the respondent; that these two subscribers are also the shareholders to the company. It was Mr Lyimo's contention that since the disqualification of the petitioner by the respondent these two partners cannot work together. That the respondent has locked the office and moved out some of the D company's properties to an unknown place. It was therefore impossible for the company to operate under prevailing circumstances. Mr Lyimo was of the view that under the prevailing circumstances of disharmony between the two directors, the operation of the E company is in serious doubt and therefore it should be wound up by order of this court. In the alternative, added Mr Lyimo, the Court should find that due to the disagreement between the two directors, the operation of the company has been rendered impossible, this court, in exercise of its discretion to wind up the company and appoint an official receiver or liquidator so that the same may perform his legal duties to creditors and/or F shareholders.

The respondent who preferred to argue his own case before the Court put up some forceful arguments to challenge the petition.

He stated before the Court that since the inception of this company there were four G original shareholders: Steven, Ainea, Francis and Ernest. The subscribers were to be two-the petitioner Ernest and himself. The respondent told the Court that the petitioner is the cause of all the problems now facing their company. That the petitioner had withdrawn some Shs 872,000/= which he has not accounted for and referred the court H to Annexure D. The respondent disputed the contents in statement Annexure F produced by the petitioner. The respondent informed the Court that contrary to what has been stated by the petitioner, it is the same petitioner who has dissociated from the company and formed his own company by the name of Eric Business and Construction I Company. He added further that the petitioner has banked a forged

cheque in their account and a criminal case No 57 of 1994 is pending in Court. That the A petitioner is the one who has locked the office forcing the respondent to look for another venue from which to conduct their company business. As to the Land Rover the respondent said it was his own personal vehicle that he had left with the petitioner who took the registration card and added his (petitioner's) name. This matter also is still B pending in court with the registration card under police custody. The respondent also added that they have tried to summon the petitioner to come and attend to company's business but all in vain hence they sent him a message to hand over the office and C company's properties. To this request the petitioner has

not responded. It was the respondent's submission that since theirs was a private company no winding up procedures can be applied--the respondent is relying on s 140 of Cap 212. He also argued that s 167(d) is confined to members of the company and not directors. The D respondent prayed for the dismissal of the petition as it does not apply in their case at hand.

In reply Mr Lyimo on behalf of the petitioner said that as far as this company is concerned it has only two directors and therefore any resolution that was passed to E disqualify the petitioner was therefore null and void.

Having heard the parties, it is evident that the two directors cannot work together any longer. The atmosphere within which they are supposed to transact business is tainted with accusations of fraud. Not only that but there are criminal charges filed in court against one of the directors and one wonders whether under such conditions, this F company can really survive.

The petitioner has asked this Court to wind up the company under ss 163, 167(d), 172 and 173 of Cap 212. Section 163 of Cap 212 reads: G

`163 The High Court shall have jurisdiction to wind up any company registered in the Territory.'

And again s 167 lays down circumstances in which a company may be wound up by H court. The petitioner has relied on s 167(d) of Cap 212 which reads:

`A company may be wound up by the Court if--

(a) . . . .

I (b) . . . .

(c) . . . .

A (d) the number of members is reduced, in the case of a private company below two or in the case of any other company below seven.'

Mr Lyimo arguing for the petitioner has submitted that as of 12 September 1994 their company had two directors: the respondent and the petitioner. Also these two persons B are also the subscribers to the memorandum and articles of association and therefore the shareholders and no change has been effected in the company since it was incorporated. This information was transmitted to the petitioner by the office of the Registrar of Companies. C

However this information is challenged by the respondent. According to him a certified board resolution was filed with the Registrar of Companies on 12 July 1994. The contents of the resolution were twofold-the disqualification of the petitioner as a director and the appointment of one Steven P Mgaya as a new Director. Pursuant to this D resolution, a demand note of 14 March 1995 was communicated to one Joseph Mihayo (purportedly holding a power of attorney on behalf of the petitioner) to inform him of the current situation. We have therefore two contradictory informations emanating from the office of the Registrar of Companies. While the petitioner is informed on 12 September E 1994 that he is still one of the directors to the company; the same office on 12 July 1994 acknowledged the change in directorship as presented by the respondent. It is therefore rather a confused state of affairs. And in that vein the

respondent was correct to contend that their company has at the moment two directors-one Steven P Mgaya F having replaced the petitioner.

In terms of s 163 and 167(f) this court has the power to wind up any company registered in this country. Section 167(f) of Cap 212 reads: G

`167 A company may be wound up by the court if:

(a) . . . .

(b) . . . .

(c) . . . . H

(d) . . . .

(e) . . . .

(f) the court is of opinion that it is just and equitable that the company should be wound up.'

In my considered view I think it would be just if this company is wound up because as I remarked earlier on in my ruling the former

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directors are not in talking terms so to speak; each director is accusing the other A director of one of the other; accusations of fraud are abounding. The petitioner is contending that he is still one of the directors while the respondent has submitted evidence that the petitioner's name was deleted and a replacement appointed. The office B of the Registrar of Company is also not very helpful in this regard by giving contradictory statements of affairs.

In the final event, this Court in exercise of its discretion under s 167(f) has deemed it fit to wind up this company and appoints the Registrar of Companies to act as the official receiver in terms of s 179 of Cap 212. C

I make no order as to costs.

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D

[zRPz]HAJI HASSAN CHIMBO v MSHIBE IDDI RAMADHANI 1996 TLR 292 (HC)

Court High Court of Zanzibar - Vuga

Judge Kannonyele J

E

CIVIL APPEAL NO 30 OF 1995 F

22 December 1995

Flynote

Contract - Implied terms of contract - Sale Agreement not stating time for payment to be made - Reasonable time is implied

Contract - Delay in performance of contract - Inordinate delay in making payment - Payee may rescind contract G

-Headnote

Under a written agreement for the sale of a hut at a price of Shs. 40,000/=, the plaintiff made an advance payment of Shs. 20,000/=. Two years later the balance remained unpaid. The defendant then decided to rescind the contract and refund the advance H payment back to the plaintiff. The agreement did not state the time in which payment had to be made.

Held:

(i) A delay of two years for the payment of only Shs. 20,000/= is an unreasonably frustrating delay in circumstances where even small children talk of business worth a lot of money;

I (ii) The plaintiff was unreasonably late to complete his payment, entitling the defendant to rescind the contract.

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Case Information

Appeal dismissed. A

Cases referred to:

1. British & Commonwealth Holdings Plc v Quadrex holdings Inc. [1989] QB 842; [1989] 3 All ER 492.

2. Caltex (India) Ltd v Bhaghwan Devi Marodia [1969] 25 CR 238; AIR [1969] SC 405; [1969] 1 SCJ 783. B

3. Universal Cargo Carriers Corp v Citati [1957] 2 QB 401; [1957] 2 All ER 70.

[zJDz]Judgment

Kannonyele J: C

The plaintiff entered into a written sale agreement with the defendant for the purchase of a hut at an agreed price of Shs 40,000/=. He, the plaintiff, paid the defendant Shs 20,000/= advance towards the agreed price of Shs 40,000/=. No time was fixed for final payment of the balance. Also no date is indicated in the sale agreement as to when the D same was made. In the written statement of defence, however, the defendant said the sale was in 1991 and her evidence at the trial, she said the sale was in 1990.

The contractual relations were strained following the plaintiff's delay in paying the defendant the balance of Shs 20,000/= as had been agreed between them. Despite E demands through agents, the plaintiff had not yet paid the balance by early 1993. The defendant herself approached the plaintiff to press her demands for the balance payment in the said early 1993. The plaintiff offered Shs 15,000/= which the defendant F refused insisting for full payment of the balance. Plaintiff would not pay it whereupon the defendant concedes (in her evidence at the trial) to have remarked that because of his delay, the plaintiff would now have to pay Shs 10,000/= more over and above the agreed sum of Shs 20,000/=. The plaintiff had not yet paid the amount by early 1993. The G defendant complained to the `Shekha' at Mwanakwerekwe. It was there revealed that the defendant had now decided to rescind the contract upon refund of the plaintiff's Shs 20,000/= advance payment. Plaintiff refused to receive the refunded money insisting for full performance of the contract. She instituted the case in April 1994. H

The defendant won the suit before the court of first instance where it was held that she was entitled to rescind the contract under the principle of unreasonable delay. She was required to

refund the Shs 20,000/= earlier advanced to her. This judgment of the I primary court was reversed on appeal by the plaintiff to the district court. The latter held that the plaintiff was entitled to claim for perfor-

mance on account of the renewed terms in early 1993-a reference to the Shs 10,000/= A additional demand at that juncture (supra). On a further appeal to the resident magistrate's court by the defendant, however, judgment of the primary court was restored. Still aggrieved, the plaintiff is now appealing to this court. The plaintiff's seven grounds of appeal may be summarised into three namely: B

1. That the resident magistrate erred for not taking into account the fact that the defendant had earlier refused Shs 15,000/= as part payment of the balance Shs 20,000/=.

C 2. That the resident magistrate erred in failing to take into account the fact that for two years the defendant was away to the rural areas without prior arrangements for payment through an agent hand, inapplicability of the principle of unreasonable delay, and

D 3. That it was in fact the defendant who is in fact guilty for breach of the contract.

There is no dispute as to formation of a contract between the parties in this case. Rather, it is what transcends after the formation of such contract. And precisely it is a E question whether there was frustrating delay by the guilty party herein to perform his part of the bargain. On my part, I subscribe to the view held by the trial court and the second appellate court that the delay of over two years for the payment of Shs 20,000/= only under the present economy was unreasonably frustrating and, therefore, that the F defendant was entitled to rescind the contract under the circumstances. After a delay of over two years, I think the defendant was entitled to refuse receipt of Shs 15,000/= in early 1993 which amount was less than the agreed sum. And when the plaintiff was still G not able to pay the contractual balance even a year later (in early 1994), I think the defendant was entitled to rescind the contract under the circumstances. Defendant's alleged absence to the rural areas could not have been a sufficient licence to non-payment or delayed payment where the defendant was sending her agent to receive H the amount due. As a defensive gesture, the plaintiff should have paid the claimed amount to the agent and then it would have been up to the defendant and her agent to sort their affairs assuming that the agent were to misappropriate the amount.

Regard is being had of the fact that in a contract for the sale of land or immovable I property as the case was here it would normally be presumed that time was not the essence of the contract. Indeed

this is the more likely in this case where no reference at all was given to time, neither A time for entering into the agreement nor that intended for final performance. However, as already pointed out, a delay of over two years for the payment of Shs 20,000/= only is considered as unreasonably frustrating delay under the present economic situations B where even small children talk of business in terms of millions of shillings. True, the guilty party must not merely be late but be unreasonably so (British & Commonwealth Holdings Plc v Quadrex Holdings Inc

(1)). I accede to the view held by the trial court and the resident magistrate's court that the plaintiff was unreasonably late here in completing C his part of the bargain and the defendant was entitled to rescission of the contract after so much of the delay. Equity will not relieve a party the consequences of his own neglect (Caltex (India) Ltd v Bhaghwan Devi Marodia (2)).
I am satisfied that despite the practical problem which normally arises where time is not D originally intended to be the essence of the contract and yet one party becomes guilty of delay, this is a suitable case in which to apply the principle in Universal Cargo Carriers Corp v Citati (3) that where time is not of the essence, late performance will be ground for termination of the contract where it (ie the time) causes frustrating delay. E This, I think, should suffice to dispose of all the grounds of appeal lodged in this case.
This appeal is therefore dismissed in toto.
Appellant to have his costs in this court and in the courts below. F
1996 TLR p295
G
[zRPz]UBUNGO GARMENTS LTD v HASSAN NURU HASSAN AND ANOTHER 1996 TLR 295 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Kyando J

CIVIL CASE NO 15 1996 H
13 February, 1996
Flynote
Company law - Power of company to institute legal proceedings - Company declared a specified public corporation under Public Corporations (Amendment) Act 16 of 1993 - Such company has I no locus standi to institute proceedings on its own
1996 TLR p296
-Headnote
The plaintiff company, a limited liability company, brought suit against the defendants for A a permanent injunction preventing them from putting the plaintiff into receivership and claiming damages for the advertising of the alleged fact of having been cut into receivership. The defendants raised two preliminary objections, viz that as a specified public corporation under the Public Corporations (Amendment) Act 16 of 1993, the B plaintiff had no locus standi to bring the suit, and, secondly, that having been put under receivership the plaintiff had no power to apply for the relief which it sought.
Held:
(i) In terms of the provisions of Act 16 of 1993 the plaintiff could not institute legal C proceedings on its own: it had to do so at least jointly with PRSC;

(ii) The authority cited by the defendants for the second proposition was no authority for saying that a company placed under receivershp could not challenge the appointment of a receiver or being placed under receivership. D

Case Information

Application struck out for incompetence.

Case referred to:

1. Moss Steamship Co v Whinney [1912] All ER Rep 344 E

Mr Mziray for the applicant/plaintiff company.

Mr Uzanda for the respondents/defendants.

[zJDz]Judgment

Kyando, J:

The plaintiff, a limited liability company incorporated under the Companies Ordinance, F Cap 212, has brought a suit against the defendants seeking that they be restrained, by a permanent injunction, from putting it under receivership. It also claims damages for having been advertised as having been placed under receivership. Pending the determination of the suit it has filed an application in which it seeks that (1) the G respondents/defendants be restrained from `commission of illegal and unjustified acts of putting under receivership the applicant company'; (2) the respondents/defendants be restrained from harassing and/or interfering with the applicant's premises; (3) costs and (4) any other reliefs. H

The defendants, through their counsel, Mr Uzanda have raised points by way of preliminary objections to the application. These are that (1) Ubungo Garments Limited-in receivership-having been declared a specified Public Corporation under the Public Corporations (Amendment) Act (16 of 1993) have no locus standi to file the application I as the powers of the applicant/plaintiff company to institute or cause proceedings to be instituted have since been vested

entirely in the Presidential Parastatal Sector Reform Commission (PSRC); (2) the A applicant company having been put under receivership by the National Bank of Commerce effective 17 November 1995 it (the applicant) has no power to apply for a temporary injunction against the National Bank of Commerce and for the receivers appointed by the said Bank. B

I do not think the second point raised by the respondents is tenable in the circumstances of this case.

Mr Uzanda relies on the following passage from the case of Moss Steamship Co v Whitney (1) in support of his arguments on the point: C

`The appointment of a receiver and manager over the assets and business of a company does not dissolve or amibilate the company, but it does entirely support the company in the conduct of its business and deprives it of all power to enter into contracts in relation to that business or to sell, D pledge, or otherwise dispose of the property put into the possession or under the control of the receiver manager. The business of the company is carried on by the receiver and manager, but not as the company's agent. He supersedes the company and the

transactions are his transactions on E which he is personally liable with a right to be indemnified out of the assets of the company in respect of liabilities which he may incur.'

But, in my view and with respect, this passage applies to a situation where the appointment of a receiver has been made and there is no resistance or challenge to it. In F the instant matter the very appointment of a receiver by the second respondent is being challenged and this in fact is the suit which the applicant company has brought. The passage above is no authority for saying that a company placed under receivership cannot challenge the appointment of a receiver or being placed under receivership. That G passage, as stated already is therefore inapplicable to the present case and I overrule Mr Uzanda on the second point above.

Concerning the first point Mr Uzanda submits that under GN 400 of 1995 upon a company or corporation being declared a specific public corporation its supervision, H management and control vest in the Parastatal Sector Reform Commission. He sites ss 39, 40 and 43 of the Public Corporations (Amendment) Act, 1993.

The applicant company on the other hand relies on s 42 which provides: I

`Notwithstanding that a public corporation may be declared a spe-

cified public corporation it shall be the duty of the Board of every Public Corporation. A

(a) to ensure that the corporation continues to carry out its functions in accordance with its statement of corporate strategy and

(b) to cooperate with and ensure that the officers and employees of such corporation cooperate with the commission in order to facilitate that the restructuring of the Public Corporation is B successfully achieved.'

So, according to the applicant/plaintiff company, declaration of a corporation as a specified public corporation does not affect its continuing to run its activities, until such C time that the said public corporation has been put under receivership. It is contended on behalf of the applicant/plaintiff company that supervision, management and control of the applicant company is not at all with the PRSC. `This is further, it is contended, proved' by the fact that to date the said Parastal Sector (sic!) has not issued a notice of D receivership to the applicant's company as it has been the case with other specified public corporations'.

Now it is undisputed that the applicant/plaintiff company has been declared a specified public corporation. Once a corporation has been so declared, its state in my view is E diminished, as Mr Uzanda rightly submits, it becomes subject to the supervision management and (though it continues to run it continues for the limited and specified purposes as provided for in s 42), and control of PRSC. It cannot on its own institute legal proceedings. It has to do so at least jointly with PRSC. This has not been done in F this case and I have, hereby do, uphold the first preliminary point raised on behalf of the respondents/defendants. The application for temporary injunction is struck out for incompetence, it having been led by a person with no locus standi to file it. The G respondents/defendants are awarded the costs of the application.

A

[zRPz]MUHARAMI MGENI MZEE v ABDULHALIM ALI KHATIB AND ANOTHER 1996 TLR 299 (HC)

Court High Court of Zanzibar - Vuga
Judge Kannonyele J
B

Civil Appeal No. 1 of 1996
29 March 1996
Flynote
Magistrates' Courts - Jurisdiction - Jurisdiction of Resident Magistrate to hear and determine C case filed in a district court - Magistrates' Courts Act 1985 (Z)
-Headnote
A suit was instituted in the district court and dragged on for some months. Before it was determined the presiding district magistrate was promoted to resident magistrate. But D he proceeded hearing it and finally gave judgment, and ordered attachment of the appellant's property in execution of the judgment. The appellant filed an application objecting to the attachment of his motor vehicle in execution of the judgment. The application was dismissed by the same resident magistrate, formerly district magistrate. On appeal, the High Court raised the question of jurisdictional irregularity by the trial court(s): E
Held:

(i) Unlike Mainland Tanzania where a district magistrate and a resident magistrate at the same station normally have concurrent jurisdiction in respect of cases filed in the District Court at that station, in Zanzibar the two courts are different and distinct; F

(ii) Besides the differences in their original jurisdiction, district courts and district magistrates have appellate and revisional jurisdiction over primary courts, while resident magistrates and their courts have similar jurisdiction over matters from the district courts;

(iii) A resident magistrate has no original jurisdiction over cases instituted and registered in the district courts; G

(iv) The presiding magistrate in this case had no jurisdiction to proceed to hearing the case after being promoted to resident magistrate, and all proceedings after the date of promotion are a nullity for lack of jurisdiction. H

Case Information
Order accordingly.
No cases referred to.
Editorial Note: As the Magistrates' Courts Act, 1985, of Zanzibar does not designate any magistrates as Resident Magistrates, in his references to `resident magistrate' the I Honourable Judge must have had in mind `regional magistrate'.
1996 TLR p300
[zJDz]Judgment
Kannonyele, J: A

On 28 October 1993 one Abdulhalim Ali Khatib filed a suit against Jafar Ibrahim Abdalla claiming for Shs 800,000/= with interest plus costs of the suit. He also claimed for unliquidated damages connected with the claimed amount. The suit, civil case No 60 of 1993 was instituted in the district court of Zanzibar at Vuga. B

On 1 November 1993 one Mr Haroub Sh Pandu, learned District Magistrate mentioned the suit for the first time, with the parties in absentia. He ordered the parties to attend on 15 November 1993 for another mention of the suit. Mr Pandu, District Magistrate C continued to mention the suit up to 24 February 1994 with three more mentions in between. On 2 March 1994 the case was transferred to Adam S Abdulla, another learned District Magistrate before whom consent judgment was entered on 21 June 1994 in respect of Shs 700,000/= out of the total amount claimed. That notwithstanding, D the case dragged on up to 9 February 1995 before Adam S Abdullah (then still as a District Magistrate).

Mr Adam S Abdullah was promoted Resident Magistrate sometime between 9 February 1995 and 9 March 1995. Despite this new development, however, Mr Adam S Abdullah E continued to deal with the case on the latter date and beyond, now as Resident Magistrate. However, no formal transfer was made to transfer the case from the district court to the court of a Resident Magistrate. (Unfortunately there is no provision in the Magistrate's Court Act (No 6 of 1985) providing for the transfer of cases from the district F or any other court to any of the others as there is (s 33) in respect of cases instituted in a primary court).

On 31 August 1995 Mr Adam S Abdullah pronounced ex-parte judgment against the defendant in respect of Shs 100,000/= whose liability the defendant had contested. On 4 G September 1995 Mr S Abdullah Adam, the Resident Magistrate ordered for the attachment of the defendant's property in satisfaction of the total decretal amount which had now high-rocketed to some Shs 2,463,150/=. On 8 November 1995 another Muharami Mgeni Mzee filed a Miscellaneous Application No 22 of 1995 of the Resident H Magistrate's Court at Vuga in Zanzibar which was a carry forward of the proceedings in Civil Case No 60 of 1993 of the district court of Zanzibar at Vuga (supra). The parties, namely the plaintiff and defendant in District Court Civil Case No 60 of 1993 were made co-respondents in the Misc Application No 22 of 1995 of the Resident Magistrate's Court I at Vuga, Zanzibar filed by Muharami Mgeni. Muharami was objecting to the attachment or seizure of

his property (a motor vehicle) in execution of the decree in Civil Case No 60 of 1993 of A the district Court of Zanzibar (supra). Adam S Abdullah, the Resident Magistrate heard and dismissed Muharami's application on 17 November 1995. This appeal is against the ruling of dismissal dated 17 November 1995 in RM's Misc Application No 22 of 1995 B (supra). At the hearing of the appeal on 22 March 1996, I drew attention of both counsel to the apparent jurisdictional irregularities. Both counsel then agreed not to argue the appeal but rather left it to court to deal with the matter in a manner as to it deemed proper. C

Reserving my reasons for a more opportune time, I this morning nullified and quashed for illegality all the proceedings as they were before the Resident Magistrate with effect from 9 March 1995. I now give those reasons.

Unlike the law on the mainland Tanzania where the term `district magistrate' includes a D resident magistrate (s 2 Act 2 of 1984), the situation in Zanzibar is different. So that whereas a district magistrate and a resident magistrate at the same station on the mainland normally have concurrent jurisdiction in respect of all cases filed in the district court at the station, the position is different here in Zanzibar. Here a district court and E magistrate are respectively quite different and distinct from those of a resident magistrate's court, as the case may be. In Zanzibar, a district magistrate is one appointed under s 10 of the Magistrate's Court Act 6 of 1985 and his jurisdiction is conferred under ss 11 and 13 whereas general powers are provided under ss 12 and 14 F of the Act (supra). These provisions are quite different and distinct from those under s 19 on the one hand and ss 20, 21, 22, 23 and 24 which respectively provide for the appointment, jurisdiction and general powers of a resident magistrate on the other. Apart from the respective distinct original jurisdictions of these magistrates and/or their courts, G separate appellate, revisional and supervisory jurisdiction are conferred on them respectively under ss 12, 13, 16 and 17 on the one hand and ss 24 and 25 on the other. So that whereas district courts and/or magistrates are conferred with appellate and revisional jurisdictions over cases from primary courts, resident magistrates and their H courts are vested with such powers (appellate and revisional) in respect of those cases from district courts. By these provisions therefore, cases originating from primary courts are only appealable to the district court and those from the district courts to the courts of resident magistrates. I

On the other hand, only cases from resident magistrates and their

courts are directly appealable to the High Court whereas those from district courts can A only find their way to the High Court by way of second appeal thereto. This sufficiently accounts for the distinct and separate jurisdictions of district courts on the one hand and the resident magistrate's courts on the other. Briefly, ours in Zanzibar is a four-tier B system of courts from primary courts to the High Court whereas on the mainland Tanzania, it is a three-tier system of courts from primary courts to the High Court; it is a three-tier system by merging together district and resident magistrates' courts whose appeals both go directly to the High Court which is different from the situation in C Zanzibar. It is hoped that thenceforth magistrates in our jurisdiction will appreciate these jurisdictional distinctions particularly between district courts and magistrates on the one hand and resident magistrates and/or courts on the other.

Coming back to the instant case, what emerges from the foregoing is that resident D magistrates have no original jurisdiction over cases registered and instituted in the district courts. That means that if a district magistrate is promoted resident magistrate, he or she will cease to exercise original jurisdiction over those cases instituted in the district court even if he does not physically move from the station. In such situations, E such magistrates should only and within a reasonably short time after the promotion finish only those cases which have

reached advanced stages, say only awaiting judgment and proximately like cases and not otherwise. Such magistrates should not unduly and unnecessarily too long cling on to cases over whose jurisdiction they have F since been divested by way of promotion. And when they cling on those cases which it is deemed necessary to do so, they should in such cases only handle the cases retaining their old titles. They should not in these cases assume their new titles to which G they have just been promoted because as such newly promoted magistrates they do not retain with them original jurisdiction over the lower court from which they have been elevated. Just as much as it would be odd for a newly promoted district magistrate to cling on his/her erstwhile primary court cases or a high court judge to cling on his/her H erstwhile subordinate court cases, so it should be for a newly promoted resident magistrate. He should fight shy to cling on his/her erstwhile district court cases.

All proceedings connected with this case but conducted before Adam the Resident Magistrate with effect from 9 March 1995 to end were all but a nullity and therefore of no I effect on account of illegality for want of jurisdiction. I quashed all such proceedings

1996 TLR p303

and declared the emergent orders therefrom as non-consequential. Instead the record is A remitted to the district to proceed afresh before another district magistrate who will proceed from where the matter had reached on 9 February 1995 before Mr Adam S Abdullah was promoted resident magistrate. It is so ordered. B

1996 TLR p303

C

[zRPz]TANZANIA PORTLAND CEMENT CO LTD v MINISTER FOR LABOUR 1996 TLR 303 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Bubeshi J

D

MISC CIVIL CAUSE NO 107 OF 1994 E

Flynote

Civil Practice and Procedure - Parties - Joinder - Application for prerogative orders of certiorari and mandamus against Minister for Labour arising from reinstatement by Conciliation Board of employees whose services had been terminated - Application by employees to be joined as F co-respondents in application for prerogative orders unnecessary and dismissed

-Headnote

The original applicant, Tanzania Portland Cement Co Ltd, filed an application for prerogative orders of certiorari and mandamus against the Minister for Labour. The application arose from the reinstatement by the Conciliation Board of 17 employees G whose services had been terminated by the original applicant. In the present application the 17 employees sought to be joined as co-respondents in the original application against the Minister. The original applicant

opposed the application on a number of bases including one that the present applicants' presence in the proceedings was unnecessary. H

Held:

(i) To join the present applicants as co-respondents would not affect the decision of the main application: the application was not directed at them as employees but was directed against the Minister's decision. Their presence was accordingly unnecessary in the proceedings. I

Case Information

Application dismissed.

1996 TLR p304

Cases referred to: A

1. Naiman Moiro v Naicejlet Zablon [1980] TLR 274
2. Tanzania Portland Cement Ltd v Mwihechi and Anor Misc Civil Cause No 14 of 1994 (unreported)

Mr Mhina for the applicant. B

Mr Mrugaruga for the respondent.

[zJDz]Judgment

Bubeshi J:

On 4 October 1994 Messrs Tanzania Portland Cement Company Ltd hereinafter to be known as the original applicant, filed through their counsel, Mr Mhina of the Legal C Consultancy Services Committee University of Dar es Salaam, an application for prerogative orders of certiorari and mandamus against the Minister for Labour. This application was supported by the affidavit of one Gervas Mazukulu Mbonimpa, an D administrative officer in the original applicant's company.

Before this application was heard the second applicants Pius Sangali and 16 others filed an application to have their names added as the second respondents in the first application. It is not in dispute that these second applicants were formerly employees of E the original applicant and had their services terminated by their employer effective 13 January 1993. Subsequently the Conciliation Board ordered the applicant to reinstate them. As the first applicant was not happy with that decision referred the matter to the Minister, who also confirmed the Board's decision. Hence the application by the first F application for prerogative orders of certiorari and mandamus.

Whilst that application was yet to be heard, the second applicants who were formerly employees of the first applicants filed an application to have their names joined as G second respondents-the first respondent is of course the Minister for Labour. The original applicants have forcefully hoisted this application.

In their submission the new applicants have annexed to their application an affidavit by one Pius Sangali, the relevant paragraphs read as follows: H

`2. That I am authorised by my fellow employees above to depose the facts of this case to which I am very conversant with.

4. That Pius Sangali and 15 others mentioned in para 3 of Mbonimpa's affidavit are the very I people mentioned in para 1 of this affidavit.

1996 TLR p305

BUBESHI J

A 5. That the relief sought in the application of Tanzania Portland Cement Co Ltd arises out of the alleged termination or dismissal of Pius Sangali and 15 others and there is common questions of law and fact which arise between the three parties.

6. That we are interested as to all the relief claimed in the application against the Minister for Labour. B

7. That in the circumstances, our presence in court as second respondents is necessary in order to enable the Court to effectually and completely adjudicate upon and settle all the questions involved in the application by Tanzania Portland Cement Co Ltd.' C

This application has been preferred under s 95, Order 1 or 3, 4, 5, 8, 10(2), (4) of the Civil Procedure Code 1966.

At the outset the original applicants have raised several preliminary objections. It may be D pertinent to state from here. Mr Mhina learned counsel for the original applicants:

(a) That Mr Mrugaruga an officer in the office of the Labour Commissioner has no corus standi in this present application. That the Labour Commissioner E appearance is restricted in matters of appeal under the Employment Ordinance. Mr Mhina also attacked the presence of Mr Mrugaruga contending that there has been no satisfactory evidence of due authorisation from the F instant applicants. And as a result the belated power of attorney that was filed in court ex-post facto cannot cure the irregularity of incompetence as it was defective, it had no stamp duty and also the applicants themselves do normally attend court.

(b) The application by the instant applicants is improperly before this court for want G of payment of court fees. The instant applicants have relied on s 143 of the Employment Ordinance as exempting them from payment of court fees. Mr Mhina for the original applicants is contending that since the instant applicants chamber summons was brought under the provisions of the Civil Procedure H Code the reliance of exemption under s 143 of the Employment Ordinance was out of place.

Third objection is grounded on the view that there is no common question of law or fact that could arise if separate proceedings were brought against the Minister and the I instant applicants, in terms of Order 1 Rule 3 of the Civil Procedure Code 1966. According to Mr

1996 TLR p306

BUBESHI J

Mhina the instant applicants have made a bare allegation in para 5 of their affidavit but A questions of fact do not normally arise in proceedings respecting prerogative orders. In addition thereto these common questions of law as would affect both the Minister and the instant applicants have not been spelt out. B

The fourth objection raised by the original applicants is that the orders of certiorari and mandamus which the original applicants have applied for are in the nature of public law

remedies. They do not lie against individuals as such but against public bodies and officers exercising statutory fractions. C

The fifth objection raised by the original applicants is the instant applicants cannot at this juncture seek to be joined as co-respondents when leave for application for orders of mandamus and certiorari was granted by this court to the original applicant on 15 D September 1994. And it was granted on the understanding that there are mable issues of law engaging the original applicant and the Minister. The instant applicants are strangers to the said leave. Hence the instant applicants endeavour to join the proceedings is belated, an after though incompetent and with due respect a product of misguided advice. E

The seventh objection raised by the original applicants challenged the sworn affidavit by Pius Sangali particularly paras 5, 6 and 7 thereto as containing the kind of matters that a layman can be expected to have personal knowledge as claimed in para 9 of the affidavit. F

All in all the original applicants pray that this court dismiss the instant applicants with costs.

In their replies the instant application have replied to the preliminary objections as under.

It is their submission that there are common questions of law and facts which arise G between the three parties following the termination of the applicants Pius Sangali and 16 others. That the applicants believe that their presence in court as co-respondents is necessary in order to enable the court to effectually and completely adjudicate upon and settle all the questions involved in the application by Tanzania Portland Cement Co Ltd. H The applicants contend that Mr Mrugaruga acting through the Labour Commissioner is duly authorised to represent the employees in court. They place reliance on the provisions of ss 8 and 141(1) of Employment Ordinance Cap 366 as amended by Act No 5 of 1969. Also under s 95, Ord 111 Rule 1, 2(a) and 6(2) of the CPC 1966. That Mr I Mrugaruga is holding the powers of attorney of Pius Sangali and 16 others and that a

certified copy of the power of attorney was filed in court as required by Order 111 Rule A 6(2) of the Civil Procedure Code 1966. The stamp duty was duly affixed to the instrument that was registered on 31 January 1995 by the Registrar of Titles.

Mr Mrugaruga has sought to distinguish their case with the case of Naiman Moiro v B Naicejlet Zablon (1) in that of the 17 donors of powers of attorneys not all are present in court. Therefore Mr Mrugaruga is presenting the instant applicants who are not in court.

Mr Mrugaruga is also challenging the application for orders of certiorari and mandamus on the basis that it is immature and improperly brought before the High Court because C the differences, questions or disputes arising from summary dismissal had first to pass through various stages before they can be entertained by the court.

At the very outset I wish to make it clear to the parties and in particular the instant D applicants that I am at this moment and time dealing with the preliminary objections as raised by the original applicants. The outcome of this shall determine whether the application for the prerogative orders shall be heard on merits or not. In that event I shall not attempt to answer Mr Mrugaruga's submissions on the merits of the application by the original applicants. E

Likewise Mr Mrugaruga submitted that it was their sincere belief that the instant applicants were exempted from payment of court fees in terms of s 143 of Employment Order Cap 366.
As explained earlier in my ruling the original applicant M/S Tanzania Portland Cement Co F Ltd had through their advocate Mr Mhina applied for and was granted leave to apply for prerogative orders of certiorari and mandamus. And indeed it was granted on the understanding that there are triable issues of law engaging the original applicants and the Minister. And indeed as submitted by Mr Mhina the instant applicants are strangers G to that leave and can it be said that there exist triable issues of law concerning the original applicants and the instant applicants? The instant applicants contend that there are and that para 5 of their affidavit bears them out. Paragraph 5 of Pius Sangali's affidavit filed in this court in support of an application to add the names of the second H defendant reads:

`5.That the relief sought in the application of Tanzania Portland Cement Co Ltd arises out of the alleged termination or dismissal of Pius Sangali and 15 others and there is common questions of I law and fact which arise between the three parties.'

1996 TLR p308
BUBESHI J

I have had time to study their written submission but could not stick a finger on the A same. In the same vein I would uphold the original applicants last preliminary objection that the deponent was duly bound to disclose his legal source of information regarding his evokement in para 5. Non-observation of such rules may lead the Court to declare an B affidavit defective and hence no legal consequence.
Prerogative orders are public remedies touching upon questions of law. In this particular case the original applicants have applied for the prerogative orders of certiorari and mandamus in relation to the decision of the Minister for Labour dated 27 June 1994 C which enjoins the original applicant to re-instate the instant applicants. In my humble view the application filed by the original application challenges the Minister's decision to re-instate the instant applicants. Both the relief which are being sought and the grounds D on which the said reliefs are also sought would ultimately affect the instant applicants in one way or the other. One respondent here may be the Minister for Labour who is no doubt a public body for the purposes of this application. And orders sought for cannot be directed at the instant applicants but the public body in this case the Minister in relation E to his decision to reinstate the instant applicants. Can it seriously be argued that to join them as co-respondent in this application would affect the decision of the main application? To that question my considered view would be definitely no. And I say so F because the application is not directed at them as employees but the application is so directed against the Minister's decision. Hence their presence in court as co-respondents is not necessary that they will be affected by the decision of the application once it has been determined. In this regard I would hold that the decision G reached by my brother Judge Kyando in Tanzania Portland Cement Co Ltd v Mwihechi and Minister for Labour (2) has my full support. That application is almost on all forms with this instant application save that in the former the applicants had joined Mwihechi a former employee as a first respondent, whereas in the latter application the employees H are praying to be joined as co-respondents.

There were other preliminary points which had been raised by the original applicants. Such objections lay in the field of non-payment of the requisite court fees, Mr Mrugaruga appearance on behalf of the applicants including the power of attorney assigned to him I by the applicants. It was Mr Mrugaruga's submission that:

1996 TLR p309

A `the employer does not like to see the face of Mr Mrugaruga in this case and that the applicants are prepared to go it alone or engage another representative if the Court so orders.'

Before I conclude I think it is the duty of this Court to put this matter straight with due respect to Mr Mrugaruga. I did not get the impression that the original applicants did not B wish him to appear in this case. And Mr Mrugaruga ascertains that his appearance in this case should not be the reason for dismissing the application, is in my humble view it should not. I am satisfied that each party has submitted some valid arguments to which I am highly indebted to. C

However, since I am inclined to uphold the preliminary objections raised by the original applicants I have not deemed it necessary to recount each and every objection. Suffice it to say I have after giving this matter a serious thought opined that the instant applicants presence as co-respondents is not necessary and in that regard I would dismiss their D application with costs.

1996 TLR p309

E

[zRPz]SAIDI SALIM BAKHRESSA & CO LTD v VIP ENGINEERING AND MARKETING LTD 1996 TLR 309 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Makame JJA, Kisanga JJA and Ramadhani JJA

F

CIVIL APPEAL NO 39 OF 1994 G

17 April 1996

(Appeal from the decision and decree of the High Court of Tanzania, Dar es Salaam, Mapigano J.) H

Flynote

Contract - Fraud - Effect - Judgment obtained on basis of fraud by one of the parties - Decision set aside on appeal

-Headnote

The appellant company was the defendant in a suit in the High Court in which the respondent sued it for breach of contract arising from the purchase of consignments of I rice. The Court held that the ultimate oral agreement between the parties was an agency agreement and that the

1996 TLR p310

appellant, on whom the onus had been placed, had not discharged the onus of proving A that it had fully paid the contract price by showing that it had re-sold the suit rice to the respondent. On appeal the appellant contended that the judgment had been obtained by fraud and that if the

trial judge had been in possession of all the information the decision would not have gone against the appellant. B

Held:

(i) It was clear that the learned judge was not aware that the respondent had concealed that 63,600 bags out of 74,000 bags of rice had been sold and that proceeds of the sales had not been accounted for to the appellant and the fraud had directly affected the reasoning of the court. C

(ii) The fraud, concealment and deception on the part of the respondent entailed that the judgment so obtained could not stand.

Case Information

Appeal upheld.

Cases referred to: D

1. Meek v Fleming [1961] 3 All ER 148
2. Transport Equipment Ltd v D P Valambhia Civil Application No 18 of 1993 (unreported)

Mr Said El-Maamry, Mr Chandoo and Mr Kisusi for the appellant E

Mrs Rwebangira and Capt Kameja for the respondent

[zJDz]Judgment

Ramadhani, JA:

The appellant company, Saidi Salim Bakhressa & Co Ltd, which was the defendant, was adjudged by Mapigano, J to pay US $1,847,527,32 to the respondent company, VIP F Engineering and Marketing Ltd, which was the plaintiff. The appellant is aggrieved by that decision and hence this appeal.

Three different suits have been filed between these two parties on different aspects of basically the same subject matter. In the Court of Appeal there have been three G applications apart from this appeal. It is, therefore, going to be necessary at certain junctures in this judgment to pause and give some brief account of the other two suits or the three applications as the case may be.

The appellant concluded two contracts with the respondent under which the appellant H was to buy from the latter some rice described as `Vietnamese Long Grain White Rice 15 per cent broken'. The rice was packed in bags of 50 kgs and labelled `VIP Long Grain White Rice'. So, the rice has interchangeably been referred to by either of the above two descriptions. I

The first contract was signed on 30 November 1992 for 5,000 metric tons (MT) to be delivered in Dar es Salaam on 10 January

1993. The total price was US $1,650,000 payable in Tanzanian shillings. Upon signing A the contract, the appellant was to pay US $330,000. However, the consignment did not arrive until 15 March 1993, that is, two months and a few days after the agreed date. At that time, also, the appellant had only paid a total of US $293,355.44, that is, $36,644.56 short of the amount agreed on. It is important to note that both parties were in breach. B

Curiously enough, despite what has been narrated above, the parties entered into a second contract on 26 January 1993, that is some 16 days after the failure to deliver the rice under the first contract. The second contract was for the sale of another 5,000 MT C of similar rice but at a higher price of US $1,750,000. Delivery was to be on 25 February 1993.

Both lots of rice were transported in the same ship which arrived in Dar es Salaam on 15 March 1993. On that day some misunderstanding arose between the parties which D was resolved by a third agreement which will be referred to in this judgment as the oral agreement. The existence of the oral agreement has never been disputed. The parties, however, do not agree upon the content of the oral agreement.

Before we proceed, we want to make it abundantly clear that both parties have breached E the two written contracts. So, it is idle for either party to accuse the other of being guilty of breach. In our view the breaches were condoned and hence the conclusion of the second written contract and the oral agreement.

Both parties agree that the first lot of 6,047,05 MT of rice was taken by the appellant and F that the suit rice was taken by the respondent. The dispute surrounding the suit rice is as to the capacity in which the respondent took that lot. Did he take it as an agent of the appellant or as an owner of the lot? That was the issue before Mapigano, J who then had to decide what was owed and to whom. G

Before us and on behalf of the appellant were Messrs Said El-Maamry, M Chandoo and Kisusi, learned advocates. The respondent had the services of Mrs M K Rwebangira and Capt A K Kameja, learned advocates.

With respect to the suit rice, as already said, the dispute is in what capacity the H respondent handled it. The appellant claims that it sold back that lot to the respondent, that is, the respondent was the owner. The respondent, on the other hand, maintains that it was the agent of the appellant. All this boils down to what were the terms of the oral agreement. I

It is necessary to explain briefly how the oral agreement was disclosed in this litigation.

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RAMADHANI JA

The respondent in the plaint mentioned the two written contracts, when they were A entered into and the schedule of payment, but said nothing about the delivery date. The plaint went straight to mention that the appellant took delivery of the rice on 15 March 1993 and that the plaintiff (the respondent) claims US $1,882,391.66. In the WSD the B appellant disclosed the existence of the oral agreement and alleged that the suit rice was resold to the respondent at a price of Shs 8,400/= per bag of 50 kg and that the proceeds were to be deducted `from the funds of the plaintiffs'. In the reply to the WSD the respondent denied the resale and alleged that there was an agency agreement and C that the respondent was the agent of the appellant for selling the suit rice.

The learned judge then framed the first issue:

> `Whether the oral agreement entered by the parties on 15 March 1993 was an agency agreement, as D averred by the plaintiffs, or an agreement for resale, as averred by the defendants.'

One wonders with Mr Chandoo why such an important material fact of agency was not pleaded in the plaint. This is especially so when the respondent was aware of the appellant's assertion of resale since 6 May 1993 at the meeting in the office of Dr Idris E Rashid (PW2) then of the NBC. Why was that point not pleaded in the plaint drawn on 15 July 1993?

Be it as it may, the learned judge held that `where the execution of a document and receipt of consideration are admitted, but satisfaction or discharge of the debt is F pleaded, the onus of proving the plea is on the defendant, which gives the defendant the right to begin'.

So, the appellant, though it was the defendant, started to prove its case that it had fully paid the contract price by showing that it had resold the suit rice to the respondent. At G the end of the day the learned judge came to the conclusion:

`I have considered and weighed the evidence carefully and in the last analysis I consider that the scales are evenly balanced. The rule is that where the evidence on both sides is equally balanced, H the onus is not discharged. The defendant on whom the onus has been placed must accordingly fail. The suit thus succeeds.'

It was thus held that the oral agreement was an agency agreement. I

The appellant is aggrieved and has three grounds on this aspect of how the issue of oral agreement came up in the pleadings and how it

was disposed of. In ground five the appellant submits that the reply of the respondent to A the WSD ought to have been struck out because leave of the Court was not sought in accordance with Order 8 Rule 13 of the Civil Procedure Code, 1966. Alternatively, in ground six, the appellant seeks to expunge para 8 of the reply which introduced the B notion of agency to the oral agreement for being inconsistent with the plaint. If either of the two grounds succeeds, then the issue of the appellant being with the burden of proof would not arise. So, in ground two the appellant argues that the learned judge erred in shifting the legal burden of proof to the appellant and that the plaint ought to have been dismissed for lack of proof. C

In the alternative the appellant submits in ground seven that if there was agency it has not been proved that there is a custom requiring the principal to compensate the agent for losses incurred in selling the rice. Again, in ground eight the appellant contends that the respondent is guilty of breaching the alleged agency agreement and so they should D not have succeeded.

However, in the first ground, the appellant submits that there was fraud, deception and concealment of facts on the part of the respondent which misled the High Court to deciding in its favour. This contention is very serious and, if upheld, it would render the E other grounds superfluous. So, we intend to deal with it first.

The contentions in ground one of the appeal directly concern the order by Mackanja, J in Misc Civil Application No 117 of 1993. It is therefore necessary to deal with that application in order to appreciate the contention in ground one of the appeal. F

While the main suit, Civil Case 112 of 1993, the subject of this appeal, was in progress the respondent opened Misc Civil Application 117 of 1993 on 8 September 1993 seeking for an order

to dispose of the suit rice by sale. The picture painted before Mackanja, J was that the suit rice was in the physical possession of the respondent, that not a single G bag had been sold, that its continued existence caused inconvenience to the owners of go-downs and that it could deteriorate. Mackanja, J ordered sale by auction. The learned judge also ordered that the proceedings in Civil Application 117 of 1993 form part of Civil Case No 112 of 1993. H

Let us pause here and digress a bit. The last quoted order of Mackanja, J indicates what ought to have been the case. Rather than there being a separate application for the sale of the suit rice there ought to have been an application for interlocutory orders within the main suit. We wonder why the respondent chose to multiply application unless it was to I confuse the Court and thereby derive some advantage.

1996 TLR p314

RAMADHANI JA

To go back to the subject, after the order of Mackanja, J the Court broker advertised in A Uhuru indicating that the suit rice was in Mwanza, Kigoma and Bukoba and showed how much was where. That made the appellant suspicious and caused it to make enquiries at the Tanzania Harbours Authority, as a result of which it applied to this Court to take B additional evidence under Rule 34(1)(b) in Civil Application No 18 of 1995. That application was granted.

The appellant filed affidavits by 16 different persons adducing additional evidence. The respondent, on the other hand, filed nine counter-affidavits, seven of which were sworn C by Mr J B Rugemalira (PW1) in reply to seven additional witnesses of the appellant. Two other persons filed a counter-affidavit each corroborating two counter-affidavits of Mr Rugemalira.

The picture painted by the additional evidence is so vivid and revealing. The whole of the D rice which was brought was 200,000 bags of 50 kg each. The appellant took possession of 120,911 bags. As 721 bags were shortlanded, the respondent took 78,360 bags. Out of that lot 74,000 bags were sent up-country. So, the picture that the 10,400 bags which the Court broker found up-country was the entire consignment sent E there was smashed to pieces. The broker was only told of suit rice being sent to Bukoba, Mwanza and Kigoma. He was not told that 16,000 bags were sent to Arusha and that 10,000 bags were sent to Mtwara. All the bags sent to those two towns were completely sold, contrary to the story given to Mackanja, J that not a single bag had been F sold. So, a total of 48,000 bags were sent to Bukoba, Mwanza and Kigoma. Most of those bags were sold except the 10,400 bags which were found by the Court broker.

Another revelation is that from Mtwara the respondent received Shs 78/= million while G from Kigoma he got Shs 15/= million. Until the time Mr Rugemalira swore his counter-affidavit on 3 August 1995, the respondent was still awaiting Shs 17,754,000/= from Kigoma. The amounts realised from the sales in the other places were not given. H

Mr Rugemalira in his seven counter-affidavits admits what has been stated above. He explained that the whole of the suit rice sent to Arusha and Mtwara and those bags which were sold in Bukoba, Mwanza and Kigoma were constructively transferred back to Dar es Salaam. Thus, Mr Rugemalira deposed, more bags were found by the Court I broker in Dar es Salaam than what should have been. The broker found 68,659 bags instead of 4,368.

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RAMADHANI JA
Mr Chandoo submitted that all the information given above was within the full knowledge A of the respondent who deliberately decided to conceal it. So, the learned advocated contended, Mackanja, J decided the application before him without being fully seized of all the facts and that the respondent obtained the order in his favour by fraud, deception B or concealment. Mr Chandoo cited Meek v Fleming (1) as authority for the proposition that a decision so obtained is void and cannot be allowed to stand.

Capt Kameja started by submitting that the accusation of fraud is misconceived. He contended that if there was any fraud it was committed before the High Court and so it C cannot be a ground of appeal. The learned advocate submitted that what the appellant should have done was to file a fresh suit in the High Court to set aside the judgment allegedly obtained by fraud. Alternatively, Capt Kameja submitted, the respondent could D have asked the High Court to review that decision. He cited our decision in Transport Equipment Ltd v P Valambhia (2) as authority for that submission.
Secondly, Capt Kameja contended that the rice sold by the Court broker was the suit rice. He reminded the Court that the suit rice was described as `Vietnamese Long Grain E White Rice 15 per cent Broken' and that it was placed in bags inscribed `VIP Long Grain White Rice'. Capt Kameja pointed out that the Court broker auctioned `3952.95 metric tons of VIP Long Grain White Rice'. He argued that what was auctioned was the suit rice.
The learned counsel conceded that some of the suit rice sent up-country was sold F before the auction but he reiterated the argument of constructive transfer. Capt Kameja explained that as the respondent had received his own 14,000 MT of similarly described rice in Dar es Salaam, then for every bag that was sold up-country the respondent allotted another bag in Dar es Salaam from his lot and gave it to the broker to auction. G That, the learned advocate said, is what they meant by constructive transfer.
Thirdly, Capt Kameja contended that there was no concealment deliberately or otherwise, because the respondent had no duty or obligation to disclose that information. This, he said, was because of the matter in issue in the suit before Mapigano, J; agency H or resale. The learned advocate submitted that where the rice was and how much was realised from the sales pertained to the manner of executing the agency relationship and not whether there was agency or resale. In addition to that Capt Kameja submitted that the appellant knew or had opportunity to find out those facts now claimed I to have been concealed. He pointed out that at the hearing

of the suit Mr El-Maamry cross-examined PW3 on the sale of the suit rice up-country. A The answer, he said, was `I do not know if any bag has been sold by our sub-agent. PW1 probably knows.'. Capt Kameja argued that Mr El-Maamry did not pursue the matter any further. He pointed out that the learned advocate ought to have recalled PW1 B for further cross-examination on that. This, Capt Kameja submitted, tallies with the stand taken by the appellant

that there was a resale for then where the rice was and how much had been realised was of no concern to the appellant.

Alternatively, Capt Kameja argued that even if thee was concealment of such facts there C was no miscarriage of justice occasioned. The facts said to have been concealed, the learned advocate contended, would not, if known, disprove agency but would go to show that there was a breach of agency duties by the respondent. Capt Kameja argued that D as the issue was not whether there was breach or not, then the concealment, if any, did not occasion injustice to the appellant. The learned advocate submitted that Meek v Fleming (supra) is distinguishable as the matters concealed in that case, unlike in the present one, were directly in issue.

We listened to Capt Kameja anxiously but at the end of the day we were not persuaded E by his arguments. It is not easy to see why the respondent should take this implacable stand in the veritable presence of that which they deny. The ingenuous coinage of the concept of constructive transfer betrays them, to say the least.

A Concise Law Dictionary by P G Osborn defined `constructive' as: F

> `A right, liability or status created by the law without reference to the intention of the parties; eg a constructive trust or constructive notice.' G

We are not aware that the law has created such `a right, liability or status' as constructive transfer. But we are also not saying that the categories of `constructive' are closed. However, we have not been persuaded to canonize this novel concept because it departs from the general basis of the presently known concepts of constructive. The H basis of the existing concepts is that the subject must exist and then the law merely construes its implication. There has to be malice, for instance, which the law will then imply to have been directed against the unintended victim in constructive malice. But here what was said to be constructively transferred was the rice which had already been I sold and so was not existing. We do not think that this point should detain us.

1996 TLR p317

RAMADHANI JA

We are of the opinion that the rice sold by the Court broker was not the suit rice except A for the 10,400 bags found up-country. This fact was concealed from Mackanja, J. Since the learned judge ordered that the proceedings before him, Civil Application No 117 of 1993 should form part of the proceedings of Civil Case No 112 of 1993 before Mapigano, J, the subject of this appeal, then the deceit was carried over. However, that B does not portray the whole situation. Mr Masilingi, in his written submission to Mapigano, J on behalf of the respondent, said `suit rice was not sold until the plaintiff obtained an order of the Court'. That, with the hindsight, is patently false. C

Mapigano, J also in his judgment said:

> `They (respondents) took 3952.95 metric tons of the goods and sent part of the lot to their sub-agents at Mwanza, Bukoba and Kigoma. But the whole goods consigned to the sub-agents were not sold. D The sub-agents reported that the price of Shs 8,400/= was no longer available. This situation was occasioned by an influx of the same goods which other traders had imported and released into the market at Shs 8,000/= per 50 kg. This information was relayed to

DW1 and he was asked to reduce the price to Shs 8,000/=. But he insisted upon a price of Shs 8,400/='. E

The learned judge did not know that out of 78,368 bags taken by the respondents, 74,000 bags were sent up-country. Had he known that he would not have said a `part of the lot' was sent to sub-agents. The learned judge was also not aware that apart from F the three towns he named there were Arusha and Mtwara which had received a total of 26,000 bags. Then he was taken for a ride when he gulped hook, line and sinker the concoction that `the whole goods consigned to the sub-agents were not sold'. The G respondent concealed from him the fact that 63,000 bags out of 74,000 bags had been sold and that proceeds from the sales have not been accounted for to the appellant, the so-called principal.

So, the deceit and/or the concealment though perpetrated before Mackanja, J directly affected the reasoning of Mapigano, J. We entertain no doubt that if Mapigano, J was H seized with the truth he would not have held that the scales were evenly balanced and that the appellant had failed to prove his case. The new evidence would undoubtedly have tilted the scales in favour of the appellant. I

We agree with Mr Chandoo that the facts revealed go to show the conduct of the respondent with resect to the suit rice. That conduct

is material in determining the issue of whether the respondent was an agent of the A appellant or was the owner of the suit rice, that is, there was a resale.

We are satisfied that there was fraud, concealment and deception on the part of the respondent. It is trite law that judgment so obtained cannot be allowed to stand. B

However, there is a question posed by Capt Kameja and that is whether it is proper for this Court to annul the judgment of the High Court on the grounds of fraud committed in the High Court. This present appeal is distinguishable from that of Transport Equipment C Ltd v Valambhia (supra). In that appeal there was mere allegation of fraud. Here leave was asked for and was granted, as already said, to adduce additional evidence which has revealed beyond doubt, and the respondent has conceded as much, that material facts which were within the knowledge of the respondent were concealed. The D respondent could have sought a reference from the decision of the single judge allowing additional evidence. That was not done. Additional evidence is now before this Court. So, this Court can decide the issue. E

The decision of Mapigano, J that:

> `There will, therefore, be a decree granted to the plaintiffs for US $1,847,527.32, payable in Tanzania Shillings at the National Bank official rate ruling on the day of payment, less the net amount to be realised from the auction sales; for interest at the bank rate from 15 March 1993 until final payment; and for costs ...' F

is set aside because it was obtained by fraud.

Now we go to the 6,074.05 MT of rice whose ownership is not disputed and so the appellant is duty bound to pay for it.

The respondent in his plaint said that the appellant on 15 March 1993 took delivery of the G 10,000 MT of rice worth US $3,400,000. The respondent then went on to describe the terms of payment as being 20 per cent of the contract price on signing of the contract, 30 per cent on the arrival of the ship in the port of Dar es Salaam and that the balance was to be settled 60 days from the date of the arrival of the ship. The respondent H complained that the appellant failed to honour that agreed schedule of payment and concluded in para 12 of the plaint:

`The plaintiff claims from the defendant the sum of US $1,882,391.66 or the equivalent in Shs I 836,162,328.40 as per the official exchange rate ruling on 14 July 1993.'

RAMADHANI JA

The appellant, on the other hand, in para 6 of the WSD stated: A

`... All in all, all payments have been made to the plaintiff for the 6047.05 tons of rice within the stipulated time from the date of arrival of the ship.' B

In his reply, the respondent in para 8 did not categorically deny the allegations of the appellant that the latter has fully paid for the 6,047.05 MT. The respondent merely stated:

`As regards para 6, the original payment schedule had to change following the oral agreement C entered into to facilitate quick sales in order to enable the defendants pay the price by 7 May 1993 (the date the plaintiffs were liable to the bank for the loan) ... But the defendants did not pay the balance by 7 May 1993, nor did they pay by 15 May 1993 which was 60 days from the date of the ship's arrival when they were contractually supposed to have paid the full balance.' D

The respondent recapitulated his claim for US $1,882,391.66 in paras 10 and 11 of his reply.

In Court when giving his evidence on oath, said Bakhressa (DW1) stated again: `I paid for the 6,047.05 MT which I bought from the plaintiffs.' DW1 was not contradicted in E cross-examination.

That the position of the appellant has consistently been that it has fully paid for the lot it has taken is attested to by Suleiman Abdallah Abubakar (PW3), a director of the respondent. He said in examination-in-chief: F

`We subsequently wrote defendants about his indebtedness to us. They replied, maintaining that they had fully paid the price of the rice.' G

The learned Trial Judge (Mapigano, J) did not make a finding one way or the other on this. He divided the rice into the two lots mentioned above and found that the first lot of 6,047.05 MT was taken by the appellant and that the suit rice was the one in dispute. He H finally decided that the appellant is liable to pay US $1,847,527.32 less any amount that would be realised from the sale by auction of the suit rice. The learned judge did not show how that figure was arrived at. That is attacked by the appellant in ground nine of appeal. I

But in all fairness to the learned judge the payment for the non-suit rice was not an issue before him. Two issues were framed:

A (1) Whether the oral agreement entered by the parties on 15 March 1993 was an agency agreement, as averred by the plaintiffs, or an agreement for sale, as averred by the defendants.

(2) To what reliefs are the parties entitled.

Now, the determination of the first issue, that is, whether agency or outright sale B pertained to the suit rice (the 3,952.95 MT) and not to the 6,047.05 MT, the non-suit rice. The reliefs to which the parties were entitled, in our opinion, also related to the suit rice.

No issue was framed with respect of the 6,047.05 MT of rice. In any case the appellant C asserted that it had fully paid for that lot and that was not controverted.

Finally, there are a number of grounds argued by Mrs Rwebangira for affirming the decision of Mapigano, J, but with respect, we agree with Mr Chandoo that those grounds cannot stand since the ground of fraud has been upheld. D

The appeal is allowed with costs for three counsel.

1996 TLR p320

E

[zRPz]GERVAS MASOME KULWA v THE RETURNING OFFICER AND OTHERS 1996 TLR 320 (HC)

Court High Court of Tanzania - Tabora

Judge Mackanja J

F

CIVIL APPEAL No. 2 OF 1995 G

28 May 1996

Flynote

Election Petitions - Locus standi in election petitions - Petitioner seeking to nullify election H results in constituencies other than his own - Whether petitioner has locus standi - Local Government (Elections) Act, 1979, Act No. 4 of 1979

Civil Practice and Procedure - Submissions to Court by the parties - Meaning and purpose of I submissions - Written submissions contained in only five sentences - Whether constituting submissions

1996 TLR p321

-Headnote

This was an election petition against the results of the 1994 local government elections A in Meatu District. The appellant was a registered voter in one of the wards and he sought to nullify the election results in all the wards of the entire district. The trial court magistrate upheld a preliminary objection to the effect that the appellant had no locus standi. He appealed to the High Court. At the hearing of the appeal the parties were B directed to make their submissions to court in writing and the advocate for the appellant submitted to court a document with five sentences only:

Held:

(i) Submissions to court must contain reasons and bases for legal and factual C propositions put forward by learned counsels as officers of the court; the five sentence document submitted on behalf of the appellant does not constitute any written submissions as required by the court;

(ii) The law gives a right to a registered voter in local government elections to D petition to court against election results in the ward in which he is registered as a voter; the petitioner in this case was a registered voter in only one ward and had no locus standi to petition against the election results in all the wards in the district.

Case Information

Appeal dismissed. E

No cases referred to.

Byabusha, for the Appellant

Masalu, for the Respondents

[zJDz]Judgment

Mackanja, J: F

The appellant was a registered voter in the last councillors' elections in Meatu District. He petitioned before the Resident Magistrate's Court at Shinyanga which has jurisdiction over Meatu District, for the nullification of election results in the whole of Meatu District. His petition was based on 14 instances of alleged non-compliance. If he had succeeded, G the elections would have had to be rerun in the whole of that district.

On the first day of hearing Mr Masalu, learned advocate for the respondents, namely the Returning Officer for Meatu District and the Director of Elections raised a preliminary H point of objection to the effect that the petitioner had no locus standi to impugn election results in the whole district. It was argued by Mr Masalu, who was upheld on this point by the Trial Court, that according to the provisions of s 110 of the Local Government (Elections) Act 4 of 1979 the appellant's right to challenge the election results was I restricted to the ward in which he had registered to vote. He therefore had no right to chal-

lenge elections results in wards in which he was not registered as a voter. In reaching A this decision the Trial Court considered the application of ss 19(1) and 110(a) of the Local Government (Elections) Act, 1979. So the petition was dismissed because the appellant had no locus standi. He was aggrieved, hence this appeal. B

The memorandum of appeal contains only two grounds. Firstly, it is contended that the learned Resident Magistrate erred in law when he dismissed the petition on the ground that the appellant had no capacity to petition against the election results in the whole of Meatu District without considering the requirements of ss 110(a) and 111(a) of the Local C Government (Elections) Act. Secondly, that the Trial Court erred in law and in fact and thereby mishandled the petition as it raised triable issues which ought to have been determined on merit after a full hearing.

Let me say right away that the second ground raises no cause of complaint at all, D because these issues could be heard and determined if the appellant had succeeded in establishing that he had locus standi in prosecuting his case. Once the Trial Court held that he did not have that capacity the petition became incompetent, and therefore null and void. Such being the position the petition ceased to have triable issues before the E subordinate court because there remained nothing to determine. In this connection, and as Mr Masalu has correctly pointed out, s 111 of the Act which makes provision for reliefs which can be awarded to a successful petitioner has no relevance at all to the stage at which the petition was dismissed. So there remains only the first ground of F appeal to be considered.

As regards the first ground of appeal when this appeal was called for hearing the parties were directed to make formal written submissions. It would appear that Mr Byabusha, an advocate based in Musoma, was engaged by the appellant to prepare the written G submissions for the appellant. He did so and filed a document with five sentences, the operative part of which read thus:

`May it please your Lordship,

In addition to my grounds of appeal I wish to submit that the learned Trial Resident Magistrate H misconstrued s 19(1) of the Local Government (Elections) Act, 1979 No 4 since that section relates to a voter and not a petitioner like myself. A petitioner is governed by the provisions quoted in my first ground of appeal ...'

Learned counsel who drew the appellant's submissions did not care to make a correct I citation of the Act, nor did he find it necessary to elaborate on the alleged misconstruction of s 19(a) although

he should have realised that his generalisation is pregnant with serious aspersion on the A professional capability of the learned Trial Magistrate. I find it unnecessary to admonish learned counsel but he should realise that what he drew for his client are not submissions at all. Submissions must contain reasons and bases for legal and factual B propositions which are put forward by learned counsel as officers of the court. In these circumstances the appellant has not filed any written submissions as required by the Court.

With or without submissions the first ground of appeal raises an important point of law. Has the appellant locus standi to pursue his mission as he alleges? And what is locus C standi, or the right to sue is based on very firm and sound principles in this country and elsewhere with comparable jurisdiction to our own. It is now well settled in India, England and East Africa that the traditional rule regarding locus standi is that judicial redress is available only to a person who has a legal injury by reason of the violation of his legal D right by the impugned action be it by a public authority or by a private individual. The injury could be to property, body, mind, reputation or to some statutory or constitutional right such as free and fair elections. It is in these circumstances that a voter can be said E to be aggrieved by the election results which are rigged in favour of one of the contestants or by election results which have been influenced by non-compliance with statutory electoral procedures. As a voter, therefore, the appellant could,

in an appropriate case, be aggrieved by the local government election results. The issue then F to what extent his right to challenge these results find expression in the law which created his right to vote.

The appellant's right to petition the Court against election results starts with his being registered as a voter. Section 15 of the Local Government (Elections) Act confers qualification to register as a voter to every Tanzanian who has attained the age of 18 G years unless he is otherwise disqualified under s 16. The appellant enjoyed an unqualified right to be registered as a voter. The second condition is that every Tanzanian cannot be allowed to be registered in every ward in which elections are to be H held. Section 17 unambiguously declares that no person shall be registered as a voter in more than one ward. The appellant was bound by this condition, and he does not say that he violated the law by being registered in more than one ward.

It would appear that being qualified to register as a voter per se does not confer the right I to challenge election results to such a person. According to s 110(a) an election petition, the civil action

by which election results can be challenged, can be presented by one or more of the A following persons, namely:

> `(a) a person who lawfully voted or had a right to vote at the election to which the petition relates; B
>
> (b) a person claiming to have had a right to be nominated or elected at election;
>
> (c) a person alleging himself to have been candidate at the election;
>
> (d) the Attorney-General.' C

The appellant falls under the first category.

Section 110 cannot bring out the intended meaning if it is to be construed in isolation. As Mr Masalu correctly pointed out, those provisions have to be read together with s 19(1) of the same Act. It provides: D

> `19(1) Subject to the provisions of this Act, a person registered as a voter in any ward shall be entitled to vote at any election in that ward, and shall be entitled so to vote only at the ward where he is registered and not elsewhere.' E

In fact the proviso to ss (2) of s 19 declares that a person shall not vote at any polling station other than the polling station allocated to him.

In my view of the law I have considered above, anyone who is qualified to register as a F voter can only vote if he is registered. So the law creates two rights. The first one is the right to register as a voter; the second one is the right to vote after registration as a voter. In my construction of s 110(a) a person who can present a petition is that who registered to vote. It does not matter if he exercised his right to vote or not. In any case the right to vote can be exercised in the ward in which the petitioner was registered, and G the interest he can pursue by an election petition challenging the election results will be limited to the ward in which he was registered to vote.

The combined effect of ss 19(a) and 110(a) of the Local Government (Elections) Act is, therefore, that a voter may be aggrieved by the results in the ward in which he was H registered to vote. That is where his constitutional interest in free and fair elections lies. The appellant cannot, in good judgment, find fault in election results in other wards in which the elections have been satisfied by the fairness of the electoral exercise. He simply does not have locus standi beyond his own ward. The appeal does not therefore I have any merit.
The appeal is dismissed with costs.
1996 TLR p325
A
[zRPz]MHDINI AHMAD NDOLANGA AND OTHERS v NATIONAL SPORTS COUNCIL AND ANOTHER 1996 TLR 325 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Bubeshi J
B

Misc Civil Case 9 of 1996
7 June 1996
Flynote
Administrative law - Power to act - National Sports Council appointing a screening committee to C screen applicants for Football Association of Tanzania executive committee - In absence of rules having been promulgated in terms of s 28 of Act 6 of 1971, screening committees appointed as a matter of practice and had power so to act
Administrative law - Screening committee - Application of rules of natural justice - Bias on part of D chairman - Chairman ought to have recused himself in view of previous disagreement
-Headnote
The applicants applied for an order of certiorari to quash the decision of the Screening Committee of the National Sports Council (the respondent) barring the applicant from E contesting the election for the Executive Committee of the Football Association of Tanzania (FAT). The applicants alleged that the Screening Committee lacked authority to act and the Chairman ought to have recused himself as he was unable to act without a tint of bias against the first applicant. F
Held:
(i) The National Sports Council was a body corporate established by Act 12 of 1967 and one of its duties was to screen candidates for FAT leadership. The power to make regulations for the establishment and composition of committees was contained in s 28(d) of Act 6 of 1971. It appeared that no G regulations had been made by the Minister in terms of s 28. In the absence of clear guidelines it could not be said that the committee acted without authority: it was for the applicant to tell the court what procedure, legal or otherwise, had been flouted by the chairman or the committee itself. The respondent, in its wisdom, had adopted a practice and

in the absence of a clear breach of a H particular law or regulation pertaining to the activities of the set up committee the committee's actions could not be held to be unlawful.

(ii) Although the chairman of the respondent denied the allegations of having a grudge against the first applicant, it was quite a plausible proposition and the I chairman ought to have recused himself from chairing the committee when he knew that the first applicant was one of the candidates.

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Case Information

Application upheld. A

Case referred to:

1. Metropolitan Properties Co Ltd v Lennon and another [1969] 1 QB 577

Lyimo and Nyangarika for the applicants. B

Kalolo for the respondents.

[zJDz]Judgment

Bubeshi, J:

The applicants, Muhidin Ahmad Ndolanga, Kassim Kashulwe, Abdul Msimbazi and C Abdallah Bulembo were amongst members of the Executive Committee of the Football Association of Tanzania (hereinafter to be called FAT) for the 1993--1995 tenure. The applicants want this court to exercise its discretion and grant the following orders, namely:

D -- an order to certiorari to quash the decision of the Screening Committee of the National Sports Council (hereinafter to be called the `respondent') of 29 March 1996 barring the applicants from contesting FAT election.

-- an order of mandamus to compel the respondent to rescind their purported E decision of scrutinising and barring the current members of the Executive Committee from contesting the FAT election.

-- an order that the scrutiny of the names of the people who were vying for various posts in the Executive Committee of FAT was unlawful. F

-- costs of this application

-- any other reliefs that this hon court may deem proper and just to grant; and

In the alternative: G

-- that there was a failure on the part of the respondent to act judicially

-- that there was a failure of natural justice

-- that their (respondents) acts were unreasonable and unfair. H

The applicants are represented by learned counsels Deogratias Lyimo and Kassim Nyangarika. They have also filed affidavits to support their application. The respondents who have strongly contested the applicants were represented by Mr Kalolo Bundale, I learned counsel and relied upon the affidavits of said Hamad ElMaamry, the chairman of the respondent, and supplementary affi-

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davits filed by Michael Wambura and Dr Ramadhan Dau, members of the respondent A council.

In the pleadings and in course of final submissions it was submitted for the respondents that the court had no jurisdiction to entertain the application. That in accordance to art B 53(2)(e) and (f) of the FAT constitution, the application before this court was premature. I propose to dispose of this matter at this juncture. Under art 53(2)(e) and (f) appeals from the National Sports Council shall be submitted to the Minister responsible for sports whose decision shall be final. Likewise the respondent have invoked art 53 of FIFA C statute on settlement of disputes as barring sports matters from being referred to courts of law before the laid down machinery thereof has been exhausted. Similarly, they have cited art 29 of the CAF statute on disputes where disagreements of like natures have to be referred to arbitration tribunal and not civil courts. The issue then is whether these D ouster clauses bar this court from hearing this application.

While I agree with the respondent on the ouster clauses, as contained in the relevant laws cited above, it is now settled and there are authorities abound that an applicant for the prerogative order of certiorari is not obliged to exhaust the prescribed administrative E machinery before resorting to a court of law, where the applicant claims that the decision complained of was reached without jurisdiction or in contravention of the rules of natural justice, the existence of such a machinery is irrelevant. In the application before me it is the legality of the committee that is in issue and if the committee had F such legal basis, that its decision was vitiated by the breach of the rules of natural justice. These are issues of law which should properly be formulated and answered by a court of law; and in attempting to answer them, this court does not in any way impinge G upon the power of the administrative tribunal, in this instance, the Ministerial powers under art 58(2)(e) and (f), of FAT constitution if at the end of this ruling there is still a decision standing. In the premises, I am satisfied that this court has jurisdiction in the H matter and I proceed to consider the application and I start with the order of certiorari. It may be pertinent at this juncture therefore to say something on the appeal pending before the Minister. Proceedings for certiorari are quite different from proceedings by way of appeal, in the latter case the appellate body is required to hear the case either generally or on particular issues raised in the appeal and for the purposes of this case all I appeals are directed to the Minister responsible for sports. In proceedings for certiorari this court is

required to exercise its supervisory function to ensure that a particular body acts in A accordance with the rule of law.

The following salient points are not in dispute. The applicants were amongst the members of the Executive Committee of Football Association of Tanzania-hereinafter to be referred as FAT-for the period 1993--1995. That on 28 March 1996 an ad hoc B screening committee, hereinafter to be called the `Committee' was appointed by the chairman of the respondent to screen names of all contestant vying for posts in the FAT leadership. The committee did its job for two consecutive days, 29--30 March 1996, and the result of the exercise was announced at a press

conference on 31 March 1996. The C applicants were amongst those disqualified to contest for the election due to take place in Dodoma on 3 April 1996. That soon after the applicants addressed an appeal to the Minister responsible for Sports against the decision of the committee and the appeal D has remained undetermined to date, it is not in dispute that the ordinary general assembly of FAT was held in Dodoma on 3 April 1996 with the first applicant presiding and the other applicants were amongst the members of the assembly and listed on the agenda were 11 items and that by the time the meeting was suspended by a court E order, there were some five items pending. That as per FAT constitution, not every special general assembly, that is an Election Assembly is proceeded by an ordinary general assembly.

The applicants have listed the following as being matters in dispute namely: F

-- whether the chairman of the National Sports Council-hereinafter to be referred as `NSC' is empowered by law to appoint an ad hoc screening committee

G -- whether the said committee has exclusive powers in law to screen and disqualify the applicants in the circumstances of the case

-- whether the committee was duly and fairly constituted

-- whether the committee observed the rules of natural justice

H -- whether the applicants were formally notified on the result of their application to contest the FAT election

-- whether the reasons given by the committee for the disqualification of the applicants were justified in law in the circumstances of this case

I -- whether applicants were given reasonable opportunity to be heard on the constitution or composition of the committee

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A -- whether the applicants appealed to the Minister in time to enable him to determine the appeal and whether the Minister was justified to leave the appeal undetermined to date

-- whether the applicants have other remedies other than the courts in the circumstances of this case

B -- what are the reliefs, the parties are entitled to

And as submitted by the respondent, the issues are:

-- whether the conditions precedent for the issuance of prerogative orders have been met

-- whether the respondent complied with the rules of natural justice C

-- whether the applicants should meet the expenses for the adjourned elections.

And as formulated by the court this issues are: D

whether the prerogative orders of certiorari and mandamus can issue in the circumstances of this case.

The National Sports Council is a body corporate, established by Act 12 of 1967 as amended by Act 6 of 1971. Amongst its functions are: E

4(1)(a) to develop, promote and control all forms of amateur sports on a national basis in conjunction with sports association.

The NSC also is charged with the duty to oversee elections of FAT. Article 49 of the FAT constitution 1995 provides that: F

`Uchambuzi wa majina ya wagombea uongozi wa FAT utafanywa na mabaraza ya ngazi husika'

Freely translated it reads: G

`Screening of names of aspirants to FAT leadership will be done by the relevant sports councils.'

And art 51(c) of same constitution provides for election of leadership at national level to H be supervised by the National Sports Council. The applicants have challenged the powers of the chairman of the respondent to appoint the committee, the constitution and composition thereof, the legal powers of the committee and whether it conducted itself in accordance with the rules of natural justice and without bias. I

The chairman of the respondent who have strongly opposed the

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application, has deponed in para 5 of his affidavit that the names of the committee were A approved by him upon proposal by the Secretary-General. That the NSC is charged with the responsibility to supervise the FAT elections at all levels is not disputed. Indeed it is one of the functions of the NSC as per arts 49 and 51 of the FAT constitution. The B power to make regulations for the establishment and composition of committees is contained in s 28(d) of Act 6 of 1971. The relevant proviso reads:

Section 28 The Minister may make regulations for the better carrying into effect the purposes and C provisions of this Act and in particular for

(a) . ..

(b) . . .

(c) . . .

(d) the establishment and composition of committees to which the council may delegate its D functions.

The question I ask myself is whether the committee set up by the chairman of the respondent to screen the names of applicants and others was a creature of s 28(d) cited above. The chairman of the respondent has not submitted that the committee he E set up in consultation with his secretary-general was in pursuance of regulations made by the Minister as per s 28 of Act 6 of 1971. The respondent's chairman has contended that such committees have been appointed as a matter of practice and the practice and procedure has been in existence since 1995. F

Both counsels have conceded that up to now there are no regulations made by the Minister in terms of s 28 of Act 6 of 1971. I must remark that, in my considered opinion the obligation to alert the Minister on the provisions of s 28 of Act 6 of 1971 is squarely on the shoulders of the respondent. They are the ones mostly concerned and to be G affected and guided by the provisions which has been in existence for the last 24 years or so. Of course s 28 of Act 6 of 1971

is not mandatory that the Minister make regulations but I think it is prudent if such legal provisions are taken into consideration in H the conduct of such matters. It is hoped that the regulations would be promulgated soon.

Counsels for applicants have submitted that in absence of regulations in terms of s 28 of the committee set up by the respondents' chairman was illegal. Counsels for the applicants were of the view that it is for the Minister to appoint the committee. With I respect, I disagree and would be inclined to agree with Mr Kalolo for the

respondent that the Minister may make regulations for the establishment and A composition of such committees to which the council may delegate its functions. The Minister does not appoint committees. To date these regulations have not been formed and neither has the law been amended. I take it therefore that the law guiding the procedure of the council is still Act 12 of 1967. B

The respondent has submitted that in absence of committees established under the provisions of s 28 of Act 6 of 1971, we then have to resort to practice. What has been the practice that has operated within the council since 1975?

The applicant has vehemently argued that the whole exercise of the chairman of the C respondent appointing the committee was an illegality, that the committee had no legal powers to do the screening. The applicant has submitted that if anything the screening exercise was to be done by the full council. D

To this the respondent has been quick to counter by the argument that the full council consists of 30 members and it had been the practice to have such ad hoc committees screen the aspirants. That the applicants were subjected to a similar procedure in 1992 and therefore he is estopped from complaining. E

As observed earlier on in my ruling, it is evident therefore that the National Sports Council has been conducting its business for the last 24 years or so without legally constituted committees. The respondent has appended to his written submission names of members in the following committees: F

- -- Kamati ya Utendaji na Fedha
- -- Kamati ya Utafiti, Mipango na maendeleo
- -- Kamati ya Ufundi na Vifaa
- -- Kamati ya Rufaa na Nidhamu
- -- Kamati ndogo ya Fedha na mali G

I hasten to add that the functions of these committees have not been spelt out, hence this court is left to speculate whether the ad hoc screening committee was an independent committee or it was required by practice to submit its findings to one of the H committees above mentioned.

In the absence of clear guidelines so established it cannot be said that the committee acted without authority. It was for the applicant to tell this court what procedure legal or otherwise has been flouted by the chairman or the committee itself. The NSC in its I wisdom has adopted this practice and in the absence of clear breach of a parti-

cular law or regulation pertaining to the activities of the set up committee, I would decline A to hold that committee's actions were unlawful. It would have been different if there had been clear functions earmarked for each committee of the council. I hold therefore that the chairman had powers in terms of the schedule to Act 12 of 1963 -- s 3(2) B thereto, to appoint the committee to transact the screening business on behalf of the council as it was done in February 1993.

Now that I have found the committee to have the mandate to transact business on behalf of the council, the next equally important issue is whether the said committee conducted C itself in accordance with the rules of natural justice and fair play.

The applicants have averred vide paras 6, 7 and 8 of the affidavit deponed to by the first applicant that there was a denial of natural justice in that: D

(a) the chairman of the committee could not have acted without a tint of bias as they had exchanged words over the CAF membership.

(b) there were rumours abound that the first applicant's name would not be cleared due to that misunderstanding. E

(c) they were not given opportunity to challenge the composition of the committee.

(d) they were not officially notified of the reasons -- para 12 of the first applicant's affidavit.

F (e) their appeal to the Minister has remained undetermined to date.

The respondent have strongly denied the allegations. On the CAF membership saga, the chairman of the respondent has submitted that he holds no grudge against the first G applicant, although he was disappointed by his lies. He submits further that he has never been biased towards the first applicant and that there were eight members on the committee where the chairman's influence was not proved. That if anything, the applicants had all the time to object to the committees composition if they thought they would not be fairly treated. H

The chairman of the respondent has submitted that all the aspirants were invited to a press conference on 31 March 199 and hence there was no need to officially inform the applicants. As to the appeal to the Minister the respondent have submitted that as the I issue had already been referred to a court of law, it became sub judice.

It is trite to remark that an administrative body exercising functions that impinge directly A on legally recognised interests, owes it as a duty to act judicially in accordance with rules of natural justice which basically means the adoption of fair procedure, which fundamentally demands freedom from interest and bias on the part of the administrative body and the right to a fair hearing for those who are immediately effected by its B decision.

That the first applicant and the chairman of the respondent have exchanged words over the CAF membership issue is common ground. I have read submissions by counsels on this point.

However I am inclined to the views expressed by the first applicant that the C respondent chairman may be harbouring a grudge over that issue. It is quite a plausible proposition.
The respondent chairman has submitted that the applicants were equally free to reject the committee membership, the chairman included and since they did not do so they are estopped from complaining. That the applicants and in particular the first applicant could D have objected to be screened by the committee is not an unreasonable proposition, the short notice notwithstanding. However, in my view it was also the duty of the chairman of the respondent to recuse himself from chairing the committee especially so E when he knew that the first applicant was one of the aspirants. That the chairman of the respondent chaired the screening exercise where the applicants were disqualified could not exonerate him from a tint of bias. I am indeed fortified in this view by the persuasive authority cited by the applicants: Metropolitan Properties Co Ltd v Lennon F and Another (1), where at 599 the distinguished jurist Lord Denning remarked that:

`. . . justice must be rooted in confidence and confidence is destroyed when right minded people go away thinking that the judge was biased ...' G

Equally true today is the time old adage that justice must not be done, but must also be manifestly seen to be done. In the event, it may not be necessary at this juncture to deal with the other complaints raised by the applicants. H
In the final event, I find that the chairman of the National Sports Council had the mandate to set up the committee as per the practice of the council. Likewise I hold that the committee had the mandate in the absence of clear breach of any legal provision or regulation hereto, to conduct business on behalf of the council. However, the said I committee failed to observe rules of justice and fair play. In the

premises, the application for the order of certiorari is granted. The decision of the A committee is hereby quashed and the National Sports Council is directed to redo the exercise of screening aspirants vying for posts in FAT leadership election. The application succeeds with costs. B
1996 TLR p334
C
[zRPz]GEORGE M SHAMBWE v ATTORNEY-GENERAL AND ANOTHER 1996 TLR 334 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Nyalali CJ, Mnzavas JJA and Mfalila JJA
D

CIVIL APPEAL NO 27 OF 1996
10 June 1996 E
(Appeal from decision of High Court of Tanzania, Moshi J)
Flynote

Elections - Election petition - Pleadings - Not correct to infer a fact which is not specifically pleaded in petition - Pleadings vague and imprecise

Elections - Election petition - Parts of petition found to be vague and imprecise - Order for amendment would not have resulted in delay if court prescribed specific period within which amendments were to be effected - In circumstances, order for amendment ought to have been granted

Civil Practice and Procedure - Pleadings - Amendments to - When amendments should be granted - Law restated

-Headnote

The appellants appealed against a preliminary ruling by the High Court in an election petition in which the learned judge had ruled that the petition suffered from vagueness and imprecision in a number of respects and he struck out the offending paragraphs. On appeal the appellant attacked the learned judge's finding on the lack of specificity in the pleadings and contended that the absence of such specificity implied that the alleged irregularities occurred at polling stations throughout the country and likewise in respect of other allegations the lack of specificity implied that

the irregularities occurred on a large scale and over the full period of the election. The appellant contended further that the learned judge had erred in not granting leave to amend.

Held:

(i) It was not correct in law to infer a fact which had not been specifically pleaded in the petition.

(ii) An order to amend the offending parts of the petition or supply further and better particulars would not necessarily have resulted in delay in the disposal of the petition since the Court could have prevented such delay by prescribing a specific period within which the amendments or further particulars were to be effected by the petititioner and the period within which the respondents were to file their answers, if any.

(iii) The principles upon which amendments to pleadings should be made needed to be reaffirmed: Amendments sought before the hearing should be freely allowed if they could be made without injustice to the other side and there was no injustice if the other side could be compensated by costs.

(iv) The striking out of the offending parts in the present matter amounted to a dismissal of the petition and this was not required in the interests of justice.

Case Information

Appeal upheld.

Case referred to:

1. Eastern Bakery v Castelino [1958] EA 461

Dr Lamwai for the appellant.

Mrs Makuru for the first respondent.

Mr Kilindu for the second respondent.

[zJDz]Judgment

Nyalali, CJ:

This is an appeal by one George M Shambwe, hereinafter called the appellant, against a G preliminary ruling by B P Moshi, J in an election petition case currently pending in the High Court at Mbeya, where the Attorney-General and one Peter S Nswima, appear as the first and second respondents respectively. The second respondent was the successful candidate in the Parliamentary multi-party elections held in October 1995 in H Mpanda East Constituency. The appellant, who stood as a candidate sponsored by the National Convention for Construction and Reform-Mageuzi political party, was unsuccessful. Consequently, he petitioned against the election results. The petition contains six main paragraphs. The sixth paragraph concerns allegations of a number of I non-compliance with the provisions of the Elections Act which allegedly ren-

dered the elections unfree and unfair. The particulars of the allegations are listed in A subparas (a) and (y).

Both the first and second respondents filed separate answers to the petition. In their answers, they not only traversed the various allegations contained in para six, but also raised an objection to the effect that the particulars of non-compliance as contained in B subparas (a) to (y) are vague and unspecific. When the objection came up for hearing on 26 February 1996, Mr Magafu, learned advocate for the appellant conceded that the particulars contained in paras 6(c), 6(e), 6(k), 6(p), 6(q), 6(r), 6(w) and 6(y) `suffer from material insufficiency'. Counsel for the appellant however resisted the respondents' C request for the defective paragraphs to be struck out and argued that the Court had discretion to have the appellant provide further and better particulars or amend the defective paragraphs under Order 6, Rule 5 and 16 respectively.

With regard to the remaining subparagraphs, that is (a), (b), (d), (f), (g), (h), (i), (j), (l), D (m), (n), (o), (r), (s), (t), (u), and (x), learned advocate for the appellant contended that they were neither vague nor imprecise but contained sufficient particulars as required by law.

The learned Trial Judge, after hearing both sides and reviewing the relevant law E concluded that, in addition to the subparagraphs conceded by the appellant, the petition suffered from vagueness and imprecision also in subparas (a), (b), (d), (f), (i), (j), (m) and (n). As to subparas (g), (h), (s) and (u), the learned Trial Judge was of the view that F they contained sufficient particulars as required by law. He was further of the view that subparas (1) and (r) disclosed no cause of action. He apparently made no finding on subpara (o).

In the light of these findings, the learned Trial Judge decided to strike out all defective G subparagraphs, that is (a), (b), (c), (d), (e), (f), (i), (j), (k), (l), (m), (n), (p), (q), (r), (v), (w) and (y). The appellant was aggrieved by this decision, hence this appeal to this Court. The memorandum of appeal contains three grounds of appeal as follows: H

`1. That the learned judge erred in law and in fact in holding that paras 6(a), (b), (c), (d), (e), (i), (j), (k), (l), (m), (n), (p), (q), (r), (v), (w) and (y) of the petition were bad in law for being vague and unspecific.

2. That the learned Judge erred in law and in fact in holding that the said paragraphs could have I been struck out on the said grounds without proof that there had been a demand for a

A statement of further and better particulars and that demand has not been met.

3. That having found that those paragraphs offended the law of pleading, the learned Judge erred in not granting leave to amend the petition so that particulars could be given.' B

In the course of presenting the case for the appellant, Dr Lamwai, learned advocate for the appellant rightly conceded that he cannot challenge the finding of the Trial Judge on the subparagraphs which the appellant, through his advocate, conceded in the High Court as being vague and imprecise. He was, however, entitled to challenge the C consequential decision to strike out the offending subparagraphs. With regard to the subparagraphs of which alleged defects were not conceded in the High Court, Dr Lamwai reiterated Mr Magafu's submission to the effect that the subparagraphs D contained sufficient particulars as required by law. Specifically with regard to subparas (a), (d), (f), (i), (j), (m) and (n). Dr Lamwai contends in effect that it is not necessary in law to name or specify the polling stations where the irregularities of non-proclamation, recording of voters' registration certificates, improper campaigns, insecure polling E booths, non-posting of voters list, voting by unregistered people and destruction of ballot papers are alleged to have occurred. According to Dr Lamwai, the absence of such specificity in the pleadings implies that the alleged irregularities occurred at all polling stations throughout the constituency. Dr Lamwai, however, cited no authority to support his contention. F

With regard to the finding of the learned Trial Judge on subpara (b) to the effect that the alleged inadequacy of election materials needed to be specified, Dr Lamwai similarly contended in effect that the absence of specificity implied that the inadequacy applied to G all kinds of polling materials. Similarly with regard to the alleged persecution of NCCR-Mageuzi members he contended in effect that the absence of specificity as to the time when it occurred implies that the alleged persecution took place during the election period. As already said, no authority was cited to us in support of the proposition H that silence in the petitions' pleadings gives rise to any implied fact. As to the finding of the learned Trial Judge on subpara (r) to the effect that no cause of action was disclosed by the alleged use of the peoples' militia to provide security contrary to the terms of an agreement between the political parties, Dr Lamwai correctly conceded that violation of I such agreement per se disclosed no cause of action and that a cause of action would exist if it is alleged that the

terms of the agreement were embodied in directives issued by the Electoral A Commission under the Elections Act.

The first issue for consideration therefore is whether it is correct in law to imply a fact which is not specifically pleaded in the petition. The answer in our view is to be found B under the

relevant provisions of the elections (Elections Petitions) Rules, 1971, the Civil Procedure Code, 1966 and the principles that underlie those provisions. We can find no rule either under the elections (Elections Petitions) Rules, 1971 or under the Civil Procedure Code to support Dr Lamwai's contention. On the other hand we recognise C that the main principle which requires disclosure of material facts in the pleadings is the well-known and established principle of fair trial. This principle has many corollaries including the rule that each party is entitled to have any and every particular of material facts which is cited in Mulla's Civil Procedure Code, 8th ed at 1197. Commenting on D Rule 4 of Order 6 of the Indian Civil Procedure Code, which is the same as our Rule 4 Order 6 of the Civil Procedure Code, 1966, Mulla states:

`The object of this rule is to furnish the opposite party with such particulars regarding the suit as are E necessary to enable him to find out what case he has to meet. It is but right and proper that each party should have any and every particular that will enable him to know his opponents case and prepare himself accordingly, but he is not entitled to have any information as to the evidence by which they are intended to be proved. What particulars are to be stated must depend on the peculiar F circumstances of the case, but generally, as much certainty and particularity must be insisted on as is reasonable, having regard to the circumstances and to the nature of the acts themselves.'

Thus bearing in mind the fundamental principle of fair trial and the consequential rules, G including the rules which the Trial Judge extensively reviewed in his ruling, we are satisfied that it is not correct in law to imply a fact which is not specifically pleaded in the petition. The position is of course different where the defendant fails to specifically deny H an allegation of the plaintiff, in which case an admission of that allegation may be implied under the provisions of subrule 5 of Order 8 of the Civil Procedure Code. It follows therefore that we agree with the learned Trial Judge that the contested subparagraphs in question are indeed vague and imprecise. I

The next issue is whether the Court below was correct in striking

out the vague and imprecise subparagraphs. Dr Lamwai has submitted to the effect that A the Court below had under the circumstances of this case only two options in its discretions. The first option is to order the amendment of the offending subparagraphs under the provisions of Order 6 Rule 16 of the Civil Procedure Code which states: B

`The Court may, at any stage of the proceedings, order to be struck out or amended any matter in any pleading which may be unnecessary or scandalous or which may tend to prejudice, embarrass or delay the fair trial to the suit.' C

It is Dr Lamwai's contention that it was not open for the Court to strike out the offending subparagraphs under Rule 16 because to do so would amount to dismissing the election petition on grounds of irregularity contrary to the provisions of Rule 27(1) of the D Elections (Elections Petitions) Rules 1971. Mrs Makuru, learned Senior State Attorney and Mr Kilindu, learned advocate for the first and second respondents respectively have countered Dr Lamwai's contention by submitting to the effect that the provisions of Rule 27(1) do not apply to a

decision to strike out under Order 6, Rule 16 of the Civil E Procedure Code. They further submitted to the effect that the Court properly exercised its discretion to strike out the offending parts of the petition because the petitioner/appellant had failed to take corrective measures in response to the objection raised in the answers filed by the respondents. Furthermore, counsel for the F respondents argued that an order to amend would result in delay in the disposal of the petition. Dr Lamwai's short answer is to the effect that no delay would result if the Court prescribed a specific period during which the amendments were to be effected.

The second option open to the Court, according to Dr Lamwai, is an order for further and G better particulars to be provided by the petitioner within a prescribed period in accordance with the provisions of Order 6 Rule 5 of the Civil Procedure Code. The position of counsel for the respondents on this aspect of the case is similar to the one concerning amendment. H

We have carefully considered the arguments on both sides and we are satisfied that an order to amend the offending parts of the petition or supply further and better particulars would not necessarily have resulted in delay in the disposal of the petition, since the Court could have prevented such delay by prescribing a specific period within which the I amendments of further particulars were to be effected by the petitioner and the period within which the

respondents were to file their answers, if any. For purposes of future guidance, we wish A to emphasise that in the interests of efficacy of justice, it should be the rule rather than the exception, to prescribe specific periods of compliance with court orders.

We need also to reaffirm the principles upon which amendments to pleadings should be B made. These were stated by the Court of Appeal for Eastern Africa in the case of Eastern Bakery v Castelino (1). That Court stated at 462, `It will be sufficient for purposes of the present case, to say that amendments to pleadings sought before the hearing should be freely allowed, if they can be made without injustice to the other side, C and there is no injustice if the other side can be compensated by costs.'

As to the question whether striking out the offending parts of the petition amounts to dismissal of the petition, we have had to consider whether the petition is unlikely to succeed without proving the allegations which have been struck out. We note that the D petition in this case rests entirely on the cumulative adverse effect of a series of alleged non-compliance or irregularities in the conduct of the electoral process in the Mpanda East Constituency. This is evident from the concluding paragraph of the petition where it is stated that `The petitioner submits that all these non-compliance adversely effected E the results in that a substantial number of voters were prevented from voting for the candidate of their choice'. We also note that most of the 17 subparagraphs which were struck out, contain allegations which are so serious that if all of them are proved, the F petition is likely to succeed. For all these reasons, we are satisfied that this petition is unlikely to succeed without proving the allegations which have been struck out. We thus find that the order by the Court below striking out the offending parts of the petition amounts to dismissal of the petition.

The next issue that must now be considered is whether the Court below erred in acting G as it did. The answer is to be found in the provisions of subrule 1 of Rule 27 of the Elections (Elections Petitions) Rules 1971 which states:

`(1) Save as is expressly provided to the contrary in these rules, no petition shall be dismissed for the H reason only of non-compliance with any of the provisions of these rules or for the reason only of any other procedural irregularity unless the court is of the opinion that such non-compliance or irregularity has resulted or is likely to result into miscarriage of justice.'

I

The part which we have emphasised clearly shows that the court

below could have properly struck out the offending parts of the petition if it was of the A opinion that the irregularities had resulted or were likely to result into a miscarriage of justice. What then was the opinion of that court which led it to do what it did? It is to be found towards the end of the ruling of the learned Trial Judge, where he states, `I am B settled in my own mind that the interests of fair trial, in the circumstances, speak out loudly in favour of an order to strike out the offending subparagraphs ..'.

With due respect to the learned Trial Judge, we do not think that the interests of fair trial spoke out loudly in favour of the order of striking out the offending subparagraphs. C Bearing in mind the fact that the case was still in its very early stages and was only about four months old, the learned Trial Judge clearly erred in failing to appreciate that the true interests of fair trial, and therefore of justice, required that the Court should D exercise its discretion in favour of ordering the petitioner to amend the offending parts of the petition, or to provide further and better particulars in terms of Order 6, Rule 16 and 5, respectively. As already mentioned earlier, in making such order, the Court would have prescribed the periods within which the parties should complete consequential pleadings. Had the Trial Judge done so, this petition would most likely have been E concluded or nearing its conclusion by now.

For all these reasons, it is obvious that this appeal must succeed with costs to the appellant. In order to avoid delay of the petition, it is appropriate that we exercise the powers of the High Court by doing what the High Court should have done as we are F authorised by s 4(1) of the Appellate Jurisdiction Act, 1979. We therefore now allow the appeal set aside the ruling of the High Court with costs and order that:

G (i) The appellant/petitioner amends those parts of the petition which were struck out by the High Court so as to give better particulars of the allegations contained therein;

(ii) The appellant/petitioner to file the above mentioned amendments in the High Court at Mbeya and to serve the same to the respondents within 10 days from today; H

(iii) The respondents to file their amended answers, if they so desire, in the High Court at Mbeya and to serve the same upon the appellant/petitioner within 10 days after being served with the amended petition;

I (iv) The respondents are to be paid the costs in respect of the amendments; and

A (v) The case be brought up before a judge to fix a hearing date or dates in the presence of the parties, soon after completion of the amendments.
We order accordingly. B
1996 TLR p342
C
[zRPz]FRANK LIONEL MAREALLE v FATUMA MOHAMED 1996 TLR 342 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Bubeshi J

D
CIVIL APPEAL NO 77A OF 1996
9 July 1996
Flynote
Family law - Matrimonial property - Division of - Conversion of marriage - Capacity to marry - E Leave to appeal granted to determine whether there had been a conversion and on the division in terms of s 11 of the Marriage Act.
-Headnote
The appellant applied for leave to appeal to the Court of Appeal against a judgment of the F Court and submitted that there were two issues which needed to be determined, viz whether there had been a conversion of the marriage, and, secondly, on the division of the matrimonial assets. It was submitted that ss 160 and 11 of the Law of Marriage Act had to go hand in hand and there had to be capacity to marry before presumption of marriage could hold. G
Held:
(i) After deliberation on the issues, leave ought to be granted to enable the Court of Appeal to determine the points of law raised.
Case Information
Case referred to:
H 1. Hemed S Tamino v Renata Mashavo Civil Appeal No 44 of 1993 (unreported)
Mr Muganda for the applicant.
Mr Magafu for the respondent.
[zJDz]Judgment
Bubeshi, J: I
Mr Muganda, learned counsel has applied on behalf of his client
1996 TLR p343
BUBESHI J
for leave to appeal to the Court of Appeal in terms of s 5(1)(c) of the Appellate A Jurisdiction Act 1979, against the judgment of this court delivered on 8 January 1997. Mr Muganda has submitted that there are two points for determination by the Court of Appeal, namely: B
`whether there was a conversion of marriage in Act, 1971 and secondly on the division terms of s 11 of the Law of Marriage Act of matrimonial assets as endorsed by this court.'

Mr Muganda's view or interpretation of the law is that in circumstances of this case there C was no conversion of marriage and that his client had no capacity to marry under s 160. Hence the division of matrimonial assets ordered was erroneous.

Mr Magafu on the other hand has resisted the application for leave. He submitted that the decision of the case was based on s 160(1) and (2) in the case of Hemed S Tamino D v Renata Mashavo (1). Again he submitted that on division of matrimonial assets, the Court of Appeal dealt with that point in the case of Bi Hawa Mohamed.

Mr Muganda in his reply said that ss 160 and 11 of the Law of Marriage must go hand in E hand. There must be capacity to marry before presumption of marriage can hold.

Mr Muganda was in essence saying that since there was no conversion of marriage to polygamous marriage, the applicant could not be covered under s 160(1) and (2). He submitted further that the Hemed case cited above by Mr Magafu was distinguishable F from the facts.

I have had time to deliberate on the issues posed by this appeal and have come to the conclusion that leave be granted to enable the Court of Appeal to determine the points of law raised, namely: G

Whether on the facts of this case the respondent was entitled to a share of the matrimonial assets.

The facts of the Hemed case (supra) would appear to be distinguishable. Application granted.

1996 TLR p344

A

[zRPz]THE MANAGER PARS BANAFSHEH TRADE AND INDUSTRIAL CO v SAJJAD B KEREWALA 1996 TLR 344 (HC)

Court High Court of Tanzania - Dodoma

Judge Msoffe J

B

CIVIL APPEAL NO 23 OF 1995

26 July 1996 C

Flynote

Civil Practice and Procedure - Evidence - Statement and production of - Defendant a layman - Court's duties under Order XVIII Rule 2 of the Civil Procedure Code 1966

-Headnote

The appellant appealed against the decision of the District Court of Dodoma which had D allowed the plaintiff's claim for breach of contract. The appellant submitted that the court had erred in denying him his right to call his defence witnesses. It appeared that at the trial on 10 February 1995 the appellant had stated that he was ready for defence and gave his submissions. Thereafter the respondent made his oral submission in reply after E an adjournment. The appellant then stated that he had intended to call witnesses and thought that he would call his witnesses. The submission was resisted by the respondent who was permitted only to file written submissions.

Held:

F (i) Although the record was not clear as to whether the appellant's submission on 10 February 1995 was an opening speech or a submission of no case to answer, on the assumption that it was an opening speech then he ought to have been given the opportunity to produce his evidence, if any, by bringing in his witnesses. The failure to do so infringed a fundamental principle of law of a party's right to be heard.

G (ii) Even assuming that the submission of 10 February 1995 was one of no case to answer, the magistrate was obliged to make a ruling on it and, in any event, the appellant being a layman, the magistrate ought to have informed him of the consequences of such submission.

Case Information

Appeal allowed and a retrial ordered. H

Cases referred to:

1. Yuill v Yuill [1945] 1 All ER 183
2. Mathuri v Nyaga [1974] EA 179
3. Simon Chitanda v Abdula Kisoma [1973] LRT No 11 I

Rweyongeza for the appellant.

Mpoki for the respondent.

1996 TLR p345

[zJDz]Judgment

Msoffe, J: A

This is an appeal against the decision of the District Court of Dodoma allowing the respondent's claim for Shs 1,200,000/= as damages for an alleged breach of contract. The facts giving rise to the case are well stated in the judgment of the Trial Court-which B facts I do not have to repeat for purposes of determining this appeal.

In the memorandum of appeal there are two grounds. In my judgment, the first ground will be enough to determine the appeal. Therefore no discussion will be made in this judgment about the second ground. C

The first ground of appeal reads as follows:

`1. That the Trial Court erred in denying the appellant his right to call his defence witnesses.'

The above complaint has a bearing on the Trial Court's proceedings of 10 February D 1995 and 10 March 1995. On 10 February 1995 one Mr Robert (a representative of the appellant company) is on record as having said, inter alia, `I am ready for defence and here are my submissions'. Thereafter he gave his oral submission after which Mr Nyabiri, learned advocate for the appellant prayed for an adjournment to prepare his E reply to the above submission. Accordingly the case was adjourned to 10 March 1995 when Mr Nyabiri made his oral submission in reply. Thereafter the defendant (through Mr Robert) said: F

`I had the intent of calling my witnesses. Up to 10 February 1995 there were some witnesses. What I thought is that today my witnesses would tender the evidence.'

In my reading of this submission I understand it to mean that the said Mr Robert actually G wanted to have witnesses testify for the defence. Anyhow, the submission was resisted by Mr

Nyabiri and the Court upheld him. Thereafter Mr Robert intimated that he wanted to file final written submissions and accordingly the case was adjourned to 17 March 1995. Up to this date the final submissions were yet to be filed and so the case H was adjourned for judgment.

Order 18 Rule 2 of The Civil Procedure Code, 1966 reads as follows: I

`2(1) On the day fixed for the hearing of the suit or any other day to which the hearing is adjourned, the party having the right to begin

A shall state his case and produce his evidence in support of the issues which he is bound to prove.

(2) The other party shall then state his case and produce his evidence (if any) and may then address the court generally on the whole case.

(3) The party beginning may then reply generally on the whole case. B

Subrule (2) is relevant for purposes of this appeal. It is clear here that after a plaintiff has stated his case then a defendant would likewise state his case and produce his evidence, if any. If my understanding of the law is correct, by stating his case a party C would actually be making his opening speech or address-though I must admit that this practice is rarely used in our jurisdiction in so far as civil matters are concerned. The issue then is whether Mr Robert's submission of 10 February 1995 was an opening D speech or a submission of no case to answer. Apparently the record is not too clear about this, but the said submission could have meant either of the two. However, assuming that it was an opening speech in which Mr Robert was stating the defence case, then he ought to have been given the opportunity to produce his evidence, if any, E by bringing in his witnesses, etc. This was not done thereby infringing a fundamental principle of law of a party's right to be heard.

Even assuming that the submission of 10 February 1995 was one of no case to answer, still I think the magistrate was expected to make a ruling on it. In any case, according to F case law the magistrate was bound to inform the defendant of the consequences of a submission of no case to answer ie that in the event he was not upheld then he would forfeit the right to call evidence. Yuill v Yuill (1) and Mathuri v Nyaga (2). It is clear from these authorities that in a given situation a defendant is given the opportunity to elect G whether or not to give the submission of no case to answer bearing in mind the resultant consequences. In Mathuri's case, for instance, Singh J had this to say at 180:

H `The position is that if a defendant in a civil case submits at the end of the plaintiff's case that there is no case which he is required to meet, then he is in effect saying that he does not want to offer any evidence. Such position does occasionally arise. The defendant may have some irrefutable point of law on his side. But that is a decision which a defendant should not take lightly, because he is I depriving himself of the right to offer evidence. The practice, therefore, is that the court points out to the defendant the seriousness of the decision he is making

A and gives him an opportunity to reconsider the matter. If the defendant still persists in pleading no case, then the Court makes note of this and proceeds as though the defendant had no evidence to offer.' (Emphasis added).

In the totality of the foregoing, I think this would be a fit case for allowing the appeal with B an order for a retrial. Accordingly the appeal is allowed with the result that there will be a trial de novo before a different magistrate rested with the necessary jurisdiction. Since the court was partly to blame for the above mentioned state of affairs there will be no order as to costs. C

Perhaps a word in passing. It seems to me that if Mr Robert--a layman in the legal parlance-had been properly guided by the court on 10 February 1995 perhaps he would have approached the matter differently. It will not be out of context to remind the learned magistrate of an observation made by this court (Kwikima Ag J (as he then was)) in the D case of Simon Chitanda v Abdula Kisoma (3) thus:

`Where the parties to a suit are laymen conducting their own cases, the trial court should scrutinise the pleadings and in general furnish any necessary guidance.' (Emphasis added) E

In this case, Mr Robert-a layman as aforesaid-ought to have been guided by the court where possible or necessary. F

1996 TLR p347

G

[zRPz]YUSUF SAME AND ANOTHER v HADIJA YUSUF 1996 TLR 347 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Msumi J

CIVIL APPEAL NO 38 OF 1996 H

1 August 1996

Flynote

Limitation - Right of action for recovery of land where owner deceased - Period of twelve years I runs from death of deceased irrespective of when letters of administration granted - Limitation may be raised at any stage of proceedings

1996 TLR p348

-Headnote

The appellants appealed against a decision of the court of the Resident Magistrate who A had allowed the respondent's suit that she was the owner of certain property and had awarded her certain damages. It appeared that the property had belonged to the respondent's husband who had died in 1979. The deceased's sons had sold the property to the two purchasers who subsequently sold it to the appellants. The B respondent applied for letters of administration in August 1991 in respect of the deceased estate and these were granted in February 1992. Armed with this grant the Land Office cancelled the two previous registrations and transferred the ownership to the respondent. At the trial the appellants had raised the question of limitation but the magistrate struck out the defence on the ground that it had not been pleaded earlier. C

On appeal,
Held:

(i) In terms of s 3(1) of the Law of Limitation Act it was immaterial whether limitation had been set up as a defence and the magistrate had accordingly erred in this respect. D

(ii) The limitation period in respect of land, irrespective of when letters of administration had been granted, was 12 years and on this basis the respondent's claim was time-barred.

Case Information

Appeal upheld. E

Raithatha for the appellants

[zJDz]Judgment

Msumi, J:

In the original case respondent Hadija Yusuf successfully sued the appellants for vacant F possession of the suit house. Upholding the suit, the learned Trial Resident Magistrate held that the suit property belongs to the respondent and also upheld her claim of Shs 30,000/= per month as specific damages. Being dissatisfied with these findings, the two appellants Yusuf Same and Hawa Dada, with the assistance of Mr Raithatha, advocate, G decided to file the present appeal.

The unchallenged facts of this case are that the suit house originally belonged to the late Juma Abdallah Samanya who died in Moshi in 1979. Among the heirs of the deceased are his two sons namely Haruni Juma and Abdallah Juma. Respondent is disputably H claiming to be the deceased widow hence one of the legal heirs. On 4 August 1981 the Kariakoo primary court appointed Haruni Juma administrator of the deceased estate. Prior to this on 17 July 1981 Haruni Juma and his brother Abdallah Juma describing themselves as the legal representatives of the deceased, sold the suit house to Omar I Mansur and Salmin Said. However, transfer of the said house

to the buyers was effected on 2 September 1981 when consent of the land officer was A obtained. Through a deed of transfer executed by Oman Mansur and Salmin Said and consented by the land officer on 29 August 1986, the suit house was again sold to the two appellants. They bought it for a sum of Shs 150,000/=. B

In August 1991 respondent opened in this court Probate and Administration Case No 64 of 1991 in which she applied for letters of administration in respect of the deceased estate. In her petition respondent asserted, among other facts, that there had been no previous proceedings for grant of probate or administration in respect of the deceased C estate. She was accordingly granted letters of administration on 25 February 1992. Armed with this grant, respondent applied to the Land Office for the transfer of the suit house in her name. On receipt of this application the land office cancelled the two previous transactions vide which the suit property was transferred to Omar Mansoor and D Salmin Said and later to the two appellants. And instead, by a transfer deed consented by the land officer on 23 October 1992, ownership of the

suit house was vested in the respondent. It is on these facts that the learned Trial Resident Magistrate made a finding that the suit house belongs to the respondent. E

The memorandum of appeal contains 11 grounds. However, essentially the appeal is against two main findings which are that the trial Resident Magistrate refused to entertain the issue of limitation because it was not raised in the pleadings and secondly that he declared null and void the two transactions vesting ownership of the suit house to F Omar Mansoor and Salmin Said, and the appellants. Let me start with limitation.

Out of the three issues framed by the Trial Court, the first issue is whether the suit is time barred. In dismissing this issue the learned Trial Resident Magistrate said: G

`At the outset I must say issue No 1 does not feature in the whole case. Nothing has been said on this issue. Further to that the issues are framed from and based on the pleadings. Going by the pleadings in this case I have not been able to see anywhere the issue of limitation raised. The first H issue is therefore struck out.'

Attractive as it might appear to be this view is respectfully wrong. It is evident that the learned Resident Magistrate is not aware of the provision of s 3(1) of the Law of Limitation Act which says: I

`Subject to the provisions of this Act, every proceeding described in

A the first column of the First Schedule to this Act and which is instituted after the period of limitation prescribed therefore opposite thereto in the second column, shall be dismissed whether or not limitation has been set up as a defence'. (Emphasis supplied)

Thus in the present case the fact that appellants did not raise as a defence in his B pleadings the issue of limitation was not a bar against raising it at a later stage. Whether the issue was raised as a defence or not limitation is a relevant issue at any stage of the proceedings. The Trial Magistrate was thus wrong in striking out as he did. Having said this, the question in this case is whether the respondent's suit is time barred. C

The suit filed in the Trial Court is for recovery of land hence the limitation period is 12 years. As for the determination of accrual of right of action and computation of period of limitation for this suit the relevant provisions are ss 9(1) and 35 of the Law of Limitation D Act. Section 9(1) says:

`Where a person institutes a suit to recover land of a deceased person, whether under a will or intestacy and deceased person was, on the date of his death, in possession of the land and was the E last person entitled to the land to be in possession of the land, the right of action shall be deemed to have accrued on the date of death.'

And s 35 says:

`for the purposes of the provisions of this Act relating to suits for the recovery of land, an administrator F of the estate of a deceased person shall be taken to claim as if there had been no interval of time between the death of the deceased person and the grant of the letters of administration or, as the case may be, of the probate.' G

Applying these provisions to the present case respondent's right of action accrued from 14 January 1979 when the deceased died. The computation of this period still begins from that date despite the fact that respondent was granted letters of administration on 25 February 1992, that is about 12 years after death of the deceased. In fact what H actually happened is that by the time when respondent was granted the letters of administration her cause of action had already been time barred. And at the time when she filed the suit on 8 July 1993 respondent was late by over two years. The arguments I of Mr Raithatha on the issue of limitation are valid hence it is held that the suit against the appellants was incompetent as it was time barred.

1996 TLR p351

MSUMI J

On the issue of who is the lawful owner of the suit house, the learned Trial Resident A Magistrate resolved it in favour of the respondent. His flow of argument starts by faulting Haruni Juma for entering into sale agreement with Omar Mansur and Salmin Said for the suit house on 17 July 1981 before he was granted letters of administration on 4 August B 1981. He argued that the purported sale was unlawful as at that time Haruni Juma had no interest in the suit house which he could validly pass. With respect this argument is unsupportable. The transfer of the suit property was effected on 2 September 1981 well after Haruni Juma had obtained the letters of administration. The sale agreement by C itself had no legal effect of vesting the property in the buyers. Its effect was to bind the parties, subject to obtaining the consent of the land officer, to abide with the terms of agreement. But the actual passing of the property was effected after the consent was obtained. Since at the time when the land officer consented to the transfer Haruni Juma D had already been appointed administrator, the transaction was legally proper.

Furthermore the learned Trial Magistrate held that Haruni Juma's appointment by Kariakoo primary court as administrator of the deceased estate was fraudulent hence the High Court in the Probate and Administration Case No 64 of 1992 declared the said E appointment null and void. Fortunately I was able to get the record of Probate and Administration Case No 53 of 1992 and nowhere is it shown that the court made the alleged nullification. In fact respondent falsely stated in her petition that there had been no previous proceedings for probate or administration in respect of the deceased estate. F The High Court was not aware of the appointment of Haruni Juma hence it could not have declared it null and void. It is evident that had it been aware of this fact, the court would not have upheld the respondent's petition for letters of administration. Thus if there is anybody to be accused of fraud it is the respondent. G

As noted earlier, the order granting the respondent letters of administration was improperly made in so far as there was already another grant made to Haruni Juma. If respondent had any grievances against the said appointment she should have raised it H in the proceedings vide which the appointment was made. For this reason her appointment which was made by this court in Case No 64 of 1991 cannot be left to stand simultaneously with the preceding grant made by Kariakoo Primary Court. In the exercise of court's inherent power as provided under s 95 of Civil Procedure Code, the I appointment of respondent made by this court in Case No 64 of 1991 is set aside.

In conclusion this appeal is allowed with costs. Appellants are declared to be the lawful A owners of the suit house. Thus they are entitled to be refunded the rents they had been paying to the respondent. B

C
[zRPz]ADECON FISHERIES (T) LTD v DIRECTOR FOR FISHERIES AND OTHERS 1996 TLR 352 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Kaji J
D

MISC CIVIL CAUSE NO 13 OF 1996
9 August 1996 E
Flynote
Administrative law - Application for order of certiorari - To quash GN 370 of 1994 for being unreasonable - Nothing to indicate that Minister acted ultra vires in enacting GN 370 - Government Notice not unreasonable F
Administrative law - Application for mandamus - To respect certificate of approval issued to applicants under the National Investment (Production and Protection) Act No 10 of 1990 by issuing fishing licence - No provision making the licence a necessary consequence of a certificate of approval issued by the IPC G
Administrative law - Licence - Issue of - Discretion must be exercised with a judicial mind - Authority having acted under a false belief that applicant's vessel exceeded 500 BHP - Decision quashed - Authority ordered to reconsider H
-Headnote
The applicants applied for various orders against the respondents arising out of the refusal of a fishing licence for the 1996 fishing period. In 1994 the Minister for Tourism, Natural Resources and the Environment (the 2nd respondent) promulgated Government Notice 370 of 1994 whereby it was ordered that fishing vessels had to comply with I certain specifications relating to overall length, tonnage and engine power. It was specified that the vessel's main engine bhp should not exceed 500. The

applicants' vessel was modified for these purposes and although it marginally exceeded A the maximum length its engine power was reduced to comply with the requirements. Notwithstanding the modification, the licence was not granted.
Aggrieved by this decision the applicant applied to court for the following relief: B

(i) an order of certiorari to remove into the court GN 370 of 1994 for the purpose of it being quashed for being unreasonable; (ii) an order of certiorari to remove into the court the decision made by the first and second respondents refusing to issue a fishing licence and for the

quashing thereof; (iii) an order of mandamus directing the first and second respondents to issue a fishing licence and to C guide their action in terms of the provisions of the National Investment (Promotion and Protection) Act 10 of 1990; (iv) an order of mandamus directing the first and second respondents to respect the certificate of approval issued to the applicants by the third respondent; (v) an order of mandamus directing the third respondent to respect the certificate of approval issued to the applicants D and protect them from irregular procedure.

Held:

(i) Government Notice 370 of 1994 had been made under s 7 of the Fisheries Act 6 of 1970 which empowered the Minister responsible for fisheries to make E regulations for inter alia the protection of fish resources. There was nothing to indicate that the Minister had acted ultra vires in sanctioning GN 370. Neither was there anything to show that GN 370 was unreasonable.

(ii) There was no provision which stipulated that once the IPC issued an investor with a certificate of approval then the Director of Fisheries or the Minister had to issue him with a fishing licence. F

(iii) If the third respondent had a duty of care to protect the applicants and he breached that duty of care and the applicants had suffered a financial loss then the remedy was to be found somewhere else and not by an order of mandamus.

(iv) The discretion which the first respondent had to exercise in awarding fishing G licences had to be exercised with a judicial mind: in refusing the applicant's licence the first and second respondents had acted under a false belief that the appellant's vessel exceeded the specified 500 bhp and the decision was accordingly not reached on the basis of fairness and justice and had to be quashed. H

(vi) An order of mandamus was however not appropriate: the respondents were rather required to reconsider the applicants' application for a fishing licence on the basis of fairness and justice.

Case Information

Ordered accordingly.

Mrs Kato for the applicants. I

Songoro for the respondents.

1996 TLR p354

[zJDz]Judgment

Kaji, J: A

This is an application by the applicants Adecon Fisheries (T) Ltd and Mr Ebrahim Halday for orders of certiorari and mandamus.

It has been filed under s 2(2) of the Judicature and Application of Laws Ordinance Cap 543, s 95 of the Civil Procedure Code, 1996, s 17(C) of the Law Reform (Fatal B Accidents and Miscellaneous Provision Ordinance) Amendment Act 55 of 1968, and any other enabling provision of the law.

The first applicant Adecon is a corporate company registered under the Companies Ordinance Cap 212 and has been doing fishing and exporting of frozen prawns for some C years.

The second applicant Iqbal is a citizen of Tanzania and the managing director of the first applicant company.

The first respondent is the Director of Fisheries in the Ministry of Tourism and Natural Resource and is entrusted, among other duties, with the authority to issue licences for D fishing or dealing in fish on fish products in Tanzania.

The second respondent is the Minister for Tourism, Natural Resources and Environment and under s 22 of the Fisheries Regulations 1989 he acts as an appellate body on issues arising under the Fisheries Act 6 of 1970. E

The third respondent is the Director-General of the Investment Promotion Centre established under the National Investment (Production and Protection) Act 10 of 1990 responsible for approving investors and for issuing certificates of approval. F

The fourth respondent is the Attorney-General who is the chief legal advisor to the Government.

In 1996 the Minister for Tourism, Natural Resources and Environment (ie second respondent) sanctioned Government Notice No 370 of 1994 whereby inter alia, it was ordered that any person who until the first day of March 1994 was using for fishing any G vessel/trawler in Lake Victoria or in the Indian Ocean (Tanzania Territorial Waters) shall, effective from 1 January 1996 have ceased to use that vessel for fishing unless the said vessel had complied with the specifications made thereunder. The said specifications showed that such a vessel should not exceed the overall length of 25,0 metres, 150 H gross registered tonnage (GRT) 2nd 500 main engine brake horse power (BHP).

For the 1996 fishing period the applicants were denied a fishing licence by the first respondent on the ground that their vessel exceeded the specified specifications. Their I appeal to the second respondent was rejected. They were aggrieved. They lodged this

1996 TLR p355

KAJI J

application praying for an order of certiorari to remove into this court the Government A Notice No 370 of 1994 for the purpose of being quashed for being unreasonable. And also to remove into this court the decisions made by the first and second respondents to refuse issuing fishing licence for 1996 fishing season for the purpose of being quashed. B

They also prayed for an order of mandamus so that the first and second respondents should be ordered to issue an appropriate fishing licence to the applicants and to guide their actions in accordance with the provisions of the National Investment (Promotion C and Protection) Act 10 of 1990. Also an order of mandamus should be directed to the third respondent to respect the certificate of approval issued to the applicants and to protect them from irregular procedure being bona fide investors protected by the laws of Tanzania. D

Elaborating on these the applicants submitted that the first and second respondents failed to act reasonably by failing to hold due and proper note of the fact that the applicants had rectified their vessel to the required specification of 500 BHP and that the reduction of the BHP was witnessed by a principal marine surveyor in the name of Mr E Josephat Shanta Notionata. And further that immediately after the meeting held on 19 January 1995 as per para 8 of the

respondent's affidavit the applicants started making efforts to comply with the requirements of the law whereby a survey certificate was later issued by Capt Mokiwa after receiving a letter from the Ministry of Works confirming the F reduction. The applicants went on submitting that a ship is not like a bicycle or a saloon car which can be rectified or removed within a short notice and that the letter from the second respondent directing the applicants to move within a short notice and to make alternative arrangement was, in their view, very unreasonable in the circumstances. G

The applicants went on submitting that the respondents acted unreasonably by failing to consider the eminent loss of government revenue, the loss of income to the applicants, and the consequent breach of the hire purchase agreement resulting into losses of the H applicant's money already paid and the great possibility of repossession of the ship by the seller.

The applicants went on submitting that the principal secretary of the second respondent Ministry is among the members who sat to approve the applicant's application of the IPC whereby no objection was raised as to the size of the ship. It is therefore their view that I there was no scientific proof supporting the specification in GN

370 of 1994, and therefore in their view GN 370 of 1994 is unreasonable both in law and A in fact.

The applicants complained that the first and second respondents acted with bias by issuing fishing licences to other vessels which had not complied with GN 370 of 1994. These vessels which were mentioned in para 7.2 of the statement are MFV Emilia with B 256.36 GRT 992 BHP, MFV Arusha with 155,8 GRT 550 BHP, MFV Odyseas with 660 BHP MFV Al-Wally with 624 BHP and MFV Mama Leda with the length of 25 metres. While under s 14 of the Fisheries Act 6 of 1970 the Minister has a discretion to exempt any person or organisation from all or any of the provisions of that Act or any subsidiary C legislation made thereunder if doing so is in the public interest, it is their submission that the first respondent did not disclose anywhere what public interest was considered in granting the other vessels licences. It is their submission that the second respondent D in refusing their appeal to issue the licence to the applicants was biased and was made without any due regard to the public interest.

The applicants were also not happy with the third respondent.

In their submission they submitted that the third respondent had a duty and responsibility E to oversee promotion and protection of investors in accordance with the law and especially s 5 of the National Investment (Promotion and Protection) Act 10 of 1990 which says: F

> `5(1), To keep under review and advise the government periodically on policies, strategies and procedure relating to the promotion and regulation of investments and matters connected therewith, and to recommend action necessary for the encouragement of private investments including simplification of procedures effecting investment and legislative measures. G

5(2)(K), To assist holder of certificate of approval in securing all licences, authorisations, approvals and permits required to enable any approval granted by the centre to have full effect.' H

It is their complaint that when their application for a licence was refused they contacted the third respondent. But the third respondent did nothing to assist them nor did the third respondent make any effort to discuss the issue with the first and second respondents to advise them accordingly. I

The applicants further submitted that there has been no co-ordination between the second and third respondents as a result the

third respondent issued them with a certificate of approval for the year 1996 but the first A and second respondents refused to issue them with a fishing licence. It is their view that it was useless for them to follow the procedure laid down by the law which is not honoured by the second respondent thereby rendering that law a useless piece of B document. They said the enactment of GN 370 of 1994 shows how the third respondent failed to protect the applicants and investors in general especially that it affected the main aspect of investment.

The applicants went on submitting through their learned counsel Mrs Kato that the first, C second and third respondents failed to analyse the state of the applicant's loan which had been guaranteed and approved by the Bank of Tanzania. And further that the respondents failed to appreciate the amount of capital and efforts that had been put in the approved project. They said the vessel is valued at US$2.5 million which was purchased under a hire purchase agreement through the Bank of Tanzania. They are D making a monthly payment of US$20,833.33 for setting of the loan to Ellafonissos which is a fishing and shipping company of Greece to whom they have so far paid US$1,514,770 of the purchase price which they also stand to lose if this application is not granted. They ended up by reminding this court that since the first and second E respondents have already issued fishing licences to other vessels which contravene GN 370 of 1994 then an order for mandamus prayed for can be made against the first and second respondents as it is within their powers. F

The respondents resisted the application. They were represented by Mr Songoro, learned State Attorney. Mr Songoro relying heavily on the counter affidavit deponed by M S Veridiana Nkwabi Macha, learned State Attorney submitted that the applicant's application for a fishing licence for the 1996 fishing season was rejected because their vessel did not meet the specification laid down in GN 370 of 1994 in that its Gross G Registered Tonnage (GRT) was 222 as against the specified 150 GRT, its length was 26.76 metres as against the specified 25.0 metres, and its brake horse power (BHP) was 700 and later reduced to 500 BHP. He said under s 15 of the Fisheries Act, the first H respondent has power to deny fishing licences to certain types of vessel, and he did to the applicants' vessel, for the purpose of conserving a diminishing fishery resources. He said if the applicant's vessel would be allowed to carry on fishing activities, it would cause a big mixing of water with debris and mud to the extent of endangering fishery resources. I

Mr Songoro went on submitting that in an application for certior-
1996 TLR p358
KAJI J
ari and mandamus like this one the crucial issue is whether the decision of the first and A second respondents was proper or erroneous in law, in view of GN370 of 1994.
It was his humble submission that the applicant's application did not point or disclose: B

(a) That there was an error on the face of the record in respect of the decision of the first and second respondents.

(b) That there was any violation of the principle of natural justice.

(c) That the respondents acted in excess of without jurisdiction. C

(d) That the respondents took into consideration extraneous consideration in reaching their decisions.

With all this it was the learned State Attorney's submission that there is no basis for this honourable court to quash the decision of the first and second respondents. He said D economic and policy consideration cannot defeat express provisions of the law.
The learned State Attorney went on submitting that the fact that the BHP was reduced to the required specification that per se was not enough to enable the applicants to be issued with a fishing licence because the lenght and GRT exceeded the specifications. E He said the first and second respondents cannot be held to have acted unreasonably because the applicants were given two years in which they were to have their vessel rectified or replaced with a vessel with the required specifications. It was the learned F State Attorney's submission that a period of two years was sufficient time and cannot be held to be unreasonable; and further that the applicants should not be heard complaining about losses because they decided to keep the vessel at their own risk because it did not meet the required specification. G
The learned State Attorney dismissed the applicant's sympathy for loss of government revenue in that since there is evidence that fishery resource is being depleted granting a fishing licence to the applicants would result into more depletion which would also cause a loss of revenue to the government. H
As far as the applicant's complaint for discrimination is concerned the learned State Attorney replied that the Fisheries Department is in a gradual process of phasing out fishing trawlers to avoid total depletion of the resource; and that it was only unfortunate the hammer fell on the applicants as a first move. It was the learned State Attorney's I submission that the act of issuing fishing licences even to some vessels which had exceeded specifications was not with bias.
1996 TLR p359
KAJI J
The learned State Attorney went on replying that the question of costs incurred by the A applicants cannot be a good ground for contravening the law. That is why licences are issued annually to allow relevant authorities to determine the state of the resources before the commencement of the fishing season and issuance of fishing licence. B
With all this the learned State Attorney called upon this court to dismiss this application.
The applicants are praying for five remedies, namely:

C 1. For an order of certiorari to remove into this court Government Notice No 370 of 1994 for the purpose of it being quashed for being unreasonable.

2. For an order of certiorari to remove into this court the decision made by the first and second respondent's refusing to issue a fishing licence to the applicants for the 1996 fishing season. D

3. For an order of mandamus directing the first and second respondents to issue an appropriate fishing licence to the applicants and to guide their action in accordance with the provisions of the National Investment (Promotion and Protection) Act 10 of 1990. E

4. For an order of mandamus directing the first and second respondents to respect the certificate of approval issued to the applicants by the third respondent as bona fide investors protected by the laws of Tanzania. F

5. For an order of mandamus directing the third respondent to respect the certificate of approval issued to the applicants and protect them from irregular procedure.

I will deal with them one after another although not necessarily in seriatim. G

Before going into the merits or demerits of these prayers I must make it clear that it is a well-known principle of law that granting a prerogative order is a discretion of the court and that the court will only do so if that is the only remedy to meet the justice of that case. H

Now as far as the first prayer is concerned the applicant's allegation is that GN 370 of 1994 is unreasonable because there is no scientific proof supporting the specification made thereunder. The learned State Attorney's reply is that that Government Notice is not unreasonable because it was sanctioned for the purpose of conserving a diminishing fishery resource. I

The crucial issue therefore is whether this GN is reasonable. In

deciding whether this GN is reasonable or unreasonable we must look at the provision A under which it was made, that is, whether it is ultra vires or intra vires.

This was made under s 7 of the Fisheries Act 6 of 1970. Under that provision of the law the Minister responsible for fisheries has got powers to make regulations for the better B carrying out the objects and purposes of that Act and may, by such regulations, make provisions which, in his opinion, are necessary or expedient for the purposes of protecting, conserving, developing, regulating or controlling the capture, collection, gathering, manufacture, storage or marketing of fish, fish products, aquatic flora or C products of aquatic flora.

The object and purpose of the Fisheries Act 6 of 1970 is inter alia to protect, conserve and control fish, fish products etc according to the wording of the title of that Act. D

According to the learned State Attorney GN 370 of 1994 was sanctioned to conserve diminishing fishery resources. It is my considered view that there is nothing indicating that the Minister acted ultra vires in sanctioning GN 370 of 1994. Likewise there is nothing indicating that GN 370 of 1994 is unreasonable. It was not necessary for the E Minister to show the amount of the diminishing fish. At any rate that would be impossible.

In view of this applicant's prayer for an order of certiorari to remove into this court GN 370 of 1994 for the purpose of being quashed is rejected. F

I will deal with the second and third prayer later.
I now move to the fourth prayer. The applicants are requesting this court to issue an order of mandamus directing the first and second respondents to respect the certificate of approval issued by the applicants by the third respondent as bona fide investors G protected by the laws of this country. According to the applicants since they were issued with a certificate of approval by the third respondent, the first and second respondents were duty bound to honour that certificate of approval and issue them with a fishing licence for that period. With respect to the learned counsel for the applicants I did not H come across a provision saying that once the Investment Promotion Centre issues an investor with a certificate of approval then the Director of Fisheries or the Minister responsible for fisheries must issue him with a fishing licence. Had it been an ordinary suit I wouldn't hesitate to hold that there is no cause of action. But for the purpose of a I prerogative order of mandamus I hold that there are no sufficient grounds for the order prayed for.
1996 TLR p361
KAJI J
In view of this the applicant's prayer for an order of mandamus directing the first and A second respondents to respect the certificate of approval issued by the third respondent to the applicants is rejected.
As far as the fifth prayer is concerned the applicants are praying for an order of B mandamus directing the third respondent to respect the certificate of approval issued to the applicants and to protect them from irregular procedure. According to the applicants, the third respondent has a duty to protect investors as per his obligations under s 5 of the National Investment (Promotion and Protection) Act 10 of 1990. It is the applicant's C feeling that the third respondent abdicated from that obligation because when they were refused a fishing licence by the first and second respondents, the third respondent refusing to respect the certificate so issued. With respect to the learned counsel for the applicants, I do not see how the question of mandamus comes in. If the third respondent D had a duty of care to protect the applicants and he breached that duty of care as a result the applicants have suffered a great financial loss, then the remedy can be found somewhere also and not by an order of mandamus. For that reason the applicant's prayer for an order of mandamus directing the third respondent to respect the certificate E of approval is rejected.
I now come to the first and second prayers. Under these prayers the applicants are praying for an order of certiorari to remove into this court the first and second respondent's decision refusing to issue the applicants with a fishing licence for the F purpose of quashing it, and an order of mandamus directing the first and second respondents to issue the applicants with a fishing licence.
According to the applicants the first and second respondents acted unreasonably in refusing them a fishing licence on the ground of failing to meet the required specification G in that they had reduced the BHP from 750 to the required specification of 500 and the length exceeded very slightly the required length in that their vessel was only 26 OM as against the specified 25 OM. They went on arguing that the first and second respondents were biased because they allowed

other fishing vessels which exceeded H the specified specification by far. They cited some examples of the said vessels. And that no public interest was involved.
In reply the learned State Attorney replied that under the Fisheries Act 1970 the second respondent can exempt any person or organisation from all or any of the provisions of I this Act or of any subsidiary legislation made thereunder if in his opinion it is in
1996 TLR p362
KAJI J
the public interest so to do (s 14) and that the move to phase out all vessels which A exceeded the specification was a gradual process and that it was only unfortunate that the hammer fell on the applicants as the first victim. He denied any bias or discrimination.
When a law allows discretion then that discretion must be exercised with a judicial mind. B It must be exercised on the basis of fairness and justice. It must not be exercised with a bias or discriminatory mind.
In the present case the crucial issue in this respect is whether in refusing the applicants application for the 1996 fishing licence while granting fishing licences to other vessels C with similar defects the first and second respondents exercised their discretion with a judicial mind without bias or discrimination.
The second respondents rejected the applicant's appeal on the ground that their vessel exceeded the 500 BHP (see Annexure A5). D
This shows clearly that the first and second respondents in refusing the applicant's application acted under a false belief that the appellant's vessel exceeded the specified 500 BHP. There is an undisputed fact in Annexure A4 that the applicant's vessel had its BHP been reduced to 500 as witnessed by a principal marine surveyor from Hellenic E Register of Shipping Mr Josephat Shanta Nationata as confirmed by the Registrar of Ships. Hellenic Register of Shipping is an authorised classification society with power to issue statutory survey certificates on behalf of the Tanzania Government.
Looking at the vessels which were issued with fishing licences although they exceeded F the specified specification as listed by the applicants it would appear that they were allowed because none of them exceeded all three specifications unlike the applicant's vessel which appeared to have exceeded all specifications. MFV Emilia had 256.36 GRT and 992 BHP, MFV Arusha 155 GRT and 550 BHP, MFV Odyseas 600 BHP, MFV G Al-Wally 624 BHP and MFV Mama Leda with the length of 25 metres. Had the first and second respondents addressed their mind to the proper 500 BHP of the applicant's vessel their decision would probably have been different.
Since the first and second respondents refused the applicant's application on a wrong H belief that the applicant's vessel exceeded all three specifications, their decision was not based on the basis of fairness and justice. It was not free from apprehension of bias and discrimination. It is hereby quashed.
The court has been asked to issue an order of mandamus directing the first and second I respondents to issue the applicants with an appropriate fishing licence. But it must be borne in mind that the
1996 TLR p363

court is not supposed to use the powers of other organs with powers vested on them by A law. Its duty is only to see to it that such powers are properly used. It is only in very rare occasions (if any) when a court can order specific performance against a government organ. The proper cause is to declare or rather to direct what is to be done. B

In view of this the first and second respondents are hereby directed to reconsider the applicant's application for a fishing licence on the basis of fairness, justice and without bias or discrimination. This is to be done within fourteen (14) days from the date of delivery of this ruling. C

1996 TLR p363

D

[zRPz]NICHOLAS HUSK AND ANOTHER v COSTA RICHY MAHALU 1996 TLR 363 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Msumi J

E

MISC CIVIL APPEAL NO 19 OF 1995

23 August 1996 F

Flynote

Landlord and tenant - Regional Housing Tribunal - Proceedings of - Participation of laymembers - Opinion to be sought before chairman prepares judgment - Section 11(4) of Rent Restriction Act 1984 G

-Headnote

The appellants appealed against a decision of the Housing Appeals Tribunal which had upheld a decision of the Regional Housing Tribunal at Dar es Salaam in favour of the respondent. The hearing of the application by the Housing Tribunal proceeded over a number of days and with a number of different laymembers participating at various H times. One of the laymembers was however present at most of the hearings but was not consulted by the chairman before the judgment was prepared. On appeal the appellants contended that this was a fatal flaw which vitiated the proceedings.

Held: I

(i) Where a laymember has participated at the commencement of the case to its conclusion and has been present in court in all subsequent

1996 TLR p364

A sittings when the determining evidence was adduced, his opinion had to be sought before the chairman prepared his judgment. Failure to do so contravened the mandatory provision of s 11(4) of the Rent Restriction Act 1984.

Case Information

Appeal upheld. B

Kalunga for the appellant.

Dr Mapunda for the respondent.

[zJDz]Judgment
Msumi, J:
This is an appeal against the judgment of the Housing Appeals Tribunal of Tanzania. The C original suit was filed and determined by the Regional Housing Tribunal of Dar es Salaam whereby respondent claimed vacant possession of the suit premises and arrears of rents. Judgment was entered in his favour and this prompted the appellants to appeal to the Housing Appeals Tribunal whose decision the appellants are now D challenging in this court.
The dispute is centred on a tenancy agreement between the appellants as tenants and respondents as landlord. According to the proceedings in the original record respondent E is accusing the appellants for non-payment of rents and disrepair of the suit house. On their part appellants are denying both allegations.
Basically the memorandum of appeal contains two grounds. In the first ground Mr Kalunga, learned counsel for the appellants is contending that the Deputy Chairman of F Housing Appeals Tribunal erred when he held that there was a lease agreement between the appellants and the respondent and that the rent payable was US $1200 per month paid in Germany. The second ground is against the Deputy Chairman's decision that the trial Chairman of Regional Housing Tribunal was right in not seeking the opinion G of the lay-members before giving his judgment. Let me start with the second ground.
It is on record that when the application began to be heard on 21 February 1994 the two lay-members who set with the chairman were Sungura and Mrisho. After partly taking the evidence of the respondent the case was adjourned to 28 February 1994. The H names of the two lay-members who participated on that day are Sungura and Chiunga who presumably replaced Mrisho. Again the case was adjourned to 16 March 1994 for continuation of the evidence of the respondent. On that day Sungura and Mrisho are shown to be the participating members. After the respondent had finished giving his I evidence there had been a number of abortive hearing dates until on

27 July 1994 when the chairman sitting with Chiunga and Mrisho as lay-members A recorded the evidence of two witnesses and thereby closed the case for the plaintiff. Before opening of the case for the defendant, the tribunal dealt with interlocutory proceedings consisting of submissions of the counsels for both parties. Two B interlocutory rulings, both of them in favour of the respondent, were issued. Eventually the case was scheduled for defence on 5 October 1994. Though their advocate, Mr Kalunga was present, none of the appellants appeared. The tribunal decided to proceed with the matter and allowed Mr Kalunga to make his final submission which followed with C reply from Dr Mapunda for the respondent and counter reply from Mr Kalunga. The participating lay-members on that day were Sungura and Chiunga. But without consulting either of them, the chairman proceeded with the preparation of the judgment which he delivered on 17 October 1994. D
Reiterating the argument he raised in the first appeal, Mr Kalunga is arguing that before writing his judgment, the trial chairman ought to have sought the opinion of at least lay-member

Sungura who participated from the beginning of the trial. His failure to do so was in breach of s 11(4) of the Rent Restriction Act, 1984. As quite rightly observed by E the Appeal Tribunal, this subsection must be read together with ss (3) of the same section. This is what the two provisions read:

`11(3) Notwithstanding the provisions of ss (1) if in the course of any proceedings before the tribunal F either or both members of the tribunal who were present at the commencement of the proceedings is or are present, the chairman and the remaining member (if any) may continue and conclude the proceedings notwithstanding such absence.

(4) At the conclusion of any proceedings before the tribunal the chairman shall seek and record the G opinion of other members present at such conclusion.'

In his judgment the deputy chairman of the Appeal Tribunal observed, among other things, that it was quite irregular for the trial chairman to keep on changing members as H the records indicate. However, on the question whether the trial chairman was right in not seeking the opinion of the members, the deputy chairman was of the following view:

`... But much as the mix up contravened the provisions of s 11(3) of the said Act, we don't think that I after the learned chairman had decided not to record the opinion of the members he was in breach of

s 11(4) because the members present should be those who commenced the hearing and thereby A continued to be present during the continuation of the hearing to the end.'

The whole purpose of having lay-members is to embody the notion of public participation B in the adjudication of landlords-tenants disputes. But together with this aim the law took cognizance of the fact that it might not be possible to get the participating members for continuation of the case after it had been adjourned. Subsection (3) is intended to take care of such eventualities. And in order to be able to contribute usefully in the decision of C the case, a lay-member must be present in court when evidence for each party is being adduced. In the present appeal the case for the respondent is basically made of the testimony of the respondent himself. The other two witnesses who testified for the respondent's case have not substantially added anything to it. Indeed the judgments of D both tribunals are based on the evidence of the respondent and the submissions of the counsels. According to the records, lay-member Songoro was present at the commencement of the case and at subsequent sittings when respondent completed his E evidence and when the trial was concluded by submissions of both counsels. Thus unlike other members who sat in this case at different times, Songoro is supposed to be well abreast with the substantive evidence of the whole case. The provisions of s 11(3) Rent Restruction Act, 1984 could not be invoked to justify omission of his opinion. F Where a lay-member has participated at the commencement of the case to its conclusion and he has been present in court in all subsequent sittings when the determining evidence was adduced, his opinion must be sought before the chairman prepares his judgment. Failure to do so will be contravening the mandatory provision of s G 11(4) of the Act and is the circumstances of this case, this defect is fatal to the whole proceedings. The mere fact that a lay-member has missed

some of the sittings in the trial does not automatically disqualify him from giving his opinion if, as in the present case, he had been present when substantive and determining evidence was being H adduced. Hence it is on this understanding that the decision of the trial chairman to readmit lay-member Songoro even after he had missed some of the sittings can be legally justified.

In conclusion, without considering whether or not the parties entered into a lease I agreement, I uphold this appeal on the observations made concerning the second ground. The judgment and pro-

ceedings of the Regional Housing Tribunal are nullified and it is hereby ordered that the A suit to start afresh before another chairman with competent jurisdiction.

1996 TLR p367

B

[zRPz]YUASA BATTERY (EA) LTD v CONCILIATION BOARD OF DSM AND OTHERS 1996 TLR 367 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Kaji J

C

D

MISC CIVIL CAUSE 32 OF 1996

26 August 1996

Flynote

Employment law - Conciliation Board - Application for leave to apply for order of certiorari to E quash decision of and for extension of time in order to do so and for stay of decision of Board - Delay not deliberate nor negligent - Prima facie case made out - In interests of industrial relations that order be made - Order granted

-Headnote

The applicant applied for orders: extending the time within which leave to apply for an F order of certiorari to quash a decision of a conciliation board had to be made; for leave to apply for such an order; and for an order staying the execution of the decision of the conciliation board.

Held:

(i) The applicant's delay had been neither deliberate nor negligent but had in fact G been motivated by a desire to exhaust all available remedies.

(ii) The applicant had established a prima facie case for relief.

(iii) If execution were not stayed the industrial relations at the work place would be damaged irreparably. H

Case Information

Applications granted.

Cases referred to:

1. R v Hillingdon London Borough, ex p Royco Homes Ltd [1974] 2 All ER 643 I

2. R v Paddington Valuation Officer ex p Peachey Property Corp Ltd [1965] 2 All ER 836

1996 TLR p368

[zJDz]Judgment

Kaji, J:

This is an application by the applicant Yuasa Battery (EA) Ltd for the following A orders/reliefs:

(i) That time within which to apply for leave to apply for an order of certiorari to B remove into this court and quash the decision of the Conciliation Board of Dar es Salaam made on 28 February 1994 be extended by enough time as would enable the applicant to make such an application.

(ii) That subject to extension of time being granted as prayed in item (i) above, C leave be granted to the applicant to apply to this court for an order of certiorari to remove into this court and quash the decision of the Conciliation Board of Dar es Salaam made on 28 February 1994 in the matter involving Eliakunda Mbonea, Said A Pazi and Halima M Selemani as complainant and Yuasa D Battery (EA) Ltd as the respondents as well as the decision made on 16 February 1995 by the Labour Commissioner on a reference to him by Yuasa Battery (EA) Ltd against the aforesaid decision of the Conciliation Board.

(iii) That the execution of the decision of the Conciliation Board of Dar es Salaam E made on 28 February 1994 as well as that of the Labour Commissioner made on 16 February 1995 in the reference giving rise to this cause be stayed pending the determination of the application for an order of certiorari to remove into this court and quash the said decisions. F

It has been made under s 2(2) of the Judicature and Application of Laws Ordinance Cap 453, s 17(2) of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Cap 360, as added by the Law Reform (Fatal Accidents and Miscellaneous Provisions) G Ordinance (Amendment) Act, 1968 and s 14(1) of the Law of Limitation Act 10 of 1971, and all other enabling provisions of law.

Upon perusing the affidavit deponed by Mr Juma Ibrahim Nzwalia who is the Assistant General Manager of the applicant company, and upon perusing the written submission of the applicant's learned counsel Mr Kisusi have been quite satisfied that the applicant's H delay was neither deliberate nor through negligence but that the applicant was first trying to exhaust all available remedies before resorting to the discretionary remedy of a prerogative order of certiorari. This was in line with the principle laid down in the cases of I R v Hillingdon London Borough (1) and R v Paddington Valuation Officer (2).

1996 TLR p369

KAJI J

In view of this I hold that the applicant's delay was with sufficient cause. A

For that reason I allow the applicant's first prayer.

As far as the second prayer is concerned, after perusing the written submission by the applicant's learned counsel I have been quite satisfied that the applicant has established B a prima facie case for leave to apply for an order of certiorari.

In view of this leave is granted for applicant to apply for an order of certiorari to remove into this court the decision of the Dar es Salaam Conciliation Board dated 28 February 1994 and the decision of the Labour Commissioner dated 16 February 1995 for the C purposes of the said decisions to be quashed.

Also after perusing Mr Nzwalla's affidavit especially para 14 together with the written submission of the learned counsel for the applicant I have been quite satisfied that if execution is not stayed the industrial relations at the place of work is likely going to be D damaged irreparably as such execution would mean reinstating the three employees thereby imposing upon the parties a master-servant relationship when they are still fighting fiercely in a legal battle. The industrial harmony and sound management will very E likely be jeopardised. For that reason I allow the application for stay of execution pending determination of the applicant's application for the order of certiorari.

The applicant to file the necessary papers within 14 days from the date of delivery of this ruling.

F

1996 TLR p370

A

[zRPz]PETER THOMAS alias PETER TOSHI v REPUBLIC 1996 TLR 370 (HC)

Court High Court of Tanzania - Tabora

Judge Mackanja J

B

CRIMINAL APPEAL No. 38 [cf.39] OF 1996

2 September 1996

Flynote

Criminal Practice and Procedure - Consent of the Director of Public Prosecutions to commence C criminal proceedings - Prosecution of appellant commenced without the consent of the Director of Public Prosecutions as the law requires - Consequences thereof - Section 34(4) of the Police Force Ordinance, Cap 332.

-Headnote

The appellant and two others were convicted of burglary and stealing. They were D prosecuted as a result of a search, ordered under s 34 of the Police Force Ordinance, which led to the seizure of one radio set stolen from the house burgled. On appeal it was argued for the appellant that the trial leading to his conviction was null and void because s 34(4) of the Police Force Ordinance requires all prosecutions conducted as a result of E any exercise of powers under that section not to be commenced save with the leave of the Director of Public Prosecutions:

Held:

(i) Section 34(4) of the Police Force Ordinance provides that `no prosecution' such as the one in the instant case `shall be commenced without the leave of the Director of Public Prosecutions'; F

(ii) In order to protect people against possible abuse of the due process of the law it is mandatory that s 34(4) of the Ordinance be construed strictly;

(iii) As the prosecution of this case was commenced without the consent of the Director of Public Prosecutions, the provisions of s 34(4) of the Police Force G Ordinance were contravened, rendering the proceedings before the lower court null and void.

Case Information

Conviction quashed and sentence set aside.

No cases referred to. H

Mahuma, for the appellant

Kabuguzi, for the respondent

[zJDz]Judgment

Mackanja, J: I

The appellant and one Geras Jeremia were convicted of burglary contrary to s 294(1) of the Penal Code in respect of the first count.

1996 TLR p371

MACKANJA J

These two men and the third accused, a young woman aged 20 years, were convicted A on the second count in respect of stealing contrary to s 265 of the Penal Code. Only the appellant, who featured as the second accused during the trial, has appealed. He has raised four grounds in his appeal. Mr Mahuma, who represents him, was granted leave to argue the fourth ground first. It is there contended that the trial of the appellant in B the lower court is a nullity for non-compliance with s 34(4) of the Police Force Ordinance Cap 332 as amended by s 397 of the Criminal Procedure Act 9 of 1985. Mr Mahuma's submissions will be understood if the events which led to the prosecution of the appellant are brought out. C

The events are fairly brief. It was found as a fact by the lower court that the appellant and the said Geras Jeremia burgled the residential house of one Leonard Daud at 3.00 am on the night of 21 February 1996. In tandem with that burglary the appellant and his D co-accused persons were found to have stolen one radio from that house. The recovery of the radio is the genesis of the fourth ground of appeal.

According to the record of proceedings before the lower court the radio was seized from the room in which the third accused spent nights. The seizure of the radio came about E after that room was searched by D/C Sembulya (PW2) who was armed with a search order, Exh P2. A search order is Police Form (PF) 91 which is issued under s 34 of the Police Force Ordinance. PF 91 with serial No 304842, Exh P2 tells it all. It is Mr Mahuma's contention that no prosecution should have been commenced without the F consent of the Director of Public Prosecutions as required by ss (4) of s 34 of the Police Force Ordinance, and that non-compliance with these provisions has rendered the prosecution of the accused persons null and void. For this reason he has invited me to quash the conviction and to set aside the sentence. G

Mr Kabuguzi, learned State Attorney, has conceded that he finds a fundamental point of law and fact from the record of proceedings of the lower court which has been raised in the fourth ground of appeal. He admits that it is mandatory to comply with s 34 of the H Police Force

Ordinance. He intimated, however, that the construction of that section should be such that where there are circumstances proving the commission of an offence the Court should desist from interfering with a conviction. He believes that the non-compliance was a technical error which can be overridden by the larger interest in I justice. Thus he prayed that the appeal be dismissed.

1996 TLR p372

MACKANJA J

The provisions which are the subject of these contentions are these: A

`34(4) No prosecution resulting from the exercise of powers under this section shall be commenced without the leave of Director of Public Prosecution.' (The emphasis is mine.) B

The operative word is `shall'. What is the effect of this word when used in statutes? The word `shall', according to The Collins English Dictionary, second Ed, is used in documents to indicate compulsion. Black's Law Dictionary (Abridged sixth ed) goes C further, the learned authors say thus:

`Shall. As used in statutes, contracts, or the like, this word is generally imperative or mandatory. In common or ordinary parlance and in its ordinary signification, the term "shall" is a word of command, D and one which has always or which must be given a compulsory meaning as denoting obligation ...'

MP Tandom, the learned author of Interpretation of Statutes, fifth ed says at 97 that: E

`From the mere use of the word "shall" it does not necessarily follow that the provisions are mandatory for all purposes. The meaning of the word "shall" has to be determined by looking at all the provisions of the section and in particular the context in which it is used. The word "shall" is F mandatory if certain penal consequences ensue the failure to take action under the particular provisions ...'

It may be safely stated that generally the word `shall' does not always mean that the enactment is obligatory; it depends upon the context in which the word `shall' occurs G and the other circumstances. In fact authorities on the use of the word `shall' are agreed that, although the word in ordinary usage means `must', it is not inconsistent with discretion. Where, however, its application or use infringes on an individual's basic rights, its use should be restricted to its natural and ordinary meaning. H

A criminal trial involves a number of basic rights the most immediate one being the right to a fair trial. A trial will not be fair if it is not in conformity with the law. In the instant case the prosecution was commenced without the consent of the Director for Public Prosecutions. It is not for nothing that the consent was made a pre-condition for any trial. I Speaking for myself I find that the intention to legislate on a consent was intended to protect indivi-

1996 TLR p373

duals against unwarranted and sham trials. In order to protect people against possible A abuse of the due process of the law it is mandatory that s 34(4) of the Police Force Ordinance be construed strictly in the ordinary and natural meanings of words employed in its provisions. In this connection the argument by learned State Counsel is untenable, B for justice is not just if the accused is not accorded a fair trial. The contravention of the provisions of ss (4) of s 34 of the

Police Force Ordinance has therefore rendered the proceedings before the lower court null and void. I would therefore quash the proceedings and order a fresh trial according to law if the Republic is still interested. C

The convictions against Geras Jeremia, Peter Thomas alias Peter Toshi and Halima Mussa alias Kase are quashed and sentence set aside. Because the accused persons have served only a minor part of the sentence in respect of the first count I direct that they be tried afresh in conformity with the law if the Director of Public Prosecution still D desires to do so. Unless, therefore, their continued incarceration is justified on account of other lawful matters, each of the accused persons is discharged from prison forthwith. E

1996 TLR p373

F

[zRPz]THOMAS EMANUEL v REPUBLIC 1996 TLR 373 (HC)

Court High Court of Tanzania - Mwanza

Judge Sekule J

G

CRIMINAL APPEAL NO 154 OF 1994

4 September 1996

Flynote

Criminal law - Defilement - Elements of offence - Requirement of penetration H

Criminal law - Attempted defilement - Sentence - Appellant having committed a beastly act in attempting to defile a two year old girl

-Headnote

The appellant had been convicted of defilement and sentenced to 15 years' I imprisonment and 12 strokes of the cane. In an appeal against the conviction and sentence it was contended that the evidence had not

1996 TLR p374

proven that the girl defiled, who was two years of age, had been penetrated. A

Held:

(i) The evidence adduced did not show that there had been penetration: if there had been penetration, the complainant, being a very young girl, would have shown some injury. B

(ii) The evidence did however prove the offence of attempted defilement and the conviction had to be changed accordingly.

(iii) In the light of the changed conviction and an incorrect sentence having been imposed (the minimum sentence now being 20 years' imprisonment by virtue of Act 19 of 1992) the sentence had to be imposed afresh. An appropriate C sentence would be 10 years' imprisonment and 12 strokes.

Case Information

Ordered accordingly.

Mbago for the respondent D

[zJDz]Judgment
Sekule, J:
The appellant was charged with, and convicted of the offence of defilement, contrary to s 136(1) of the Penal Code.
The particulars of the offence were that on or about 8 April 1994 at about 11.00 hrs at E Nyakato area within the township and District of Musoma, Mara Region did carnally know one Buya d/o Sylivester a girl under the age of fourteen years.
Upon conviction the appellant was sentenced to fifteen years imprisonment. He was F also ordered to suffer twelve strokes of the cane.
The appellant has now appealed to this court against conviction and sentence.
The case for the prosecution at the trial was briefly that PW1, Farida Mohamed was a G tenant in a house where the appellant also lived. She had a two-year old daughter, Buya Sylivester. On the material day, at about 11.30 hrs she was in her room. She then heard her daughter Buya crying sharply in the appellant's room. She rushed there and found the appellant lying on top of the child. He was naked. She raised an alarm and PW2, H Masunga was the first person to arrive at the scene. Semen looking stuff was seen on the vagina parts of the child and on her buttocks. The appellant was arrested and taken to a ten cell leader, one Ramadhani M Muyenjwa and he was subsequently charged. I
The child, Buya was examined. It was observed on the PF3 which was produced at the trial thus:
1996 TLR p375
SEKULE J
A `Hakuna jeraha lolote la kimwili au la sehemu za uzazi lilionekana. Uchafu ulikutwa sehemu za kike umeonyesha mbegu nyingi za kiume.'
The appellant denied to have been involved in the commission of the offence charged. The appellant was present at the hearing of the appeal and complained that he was not B taken to hospital.
Mr Mbago, learned State Attorney appeared for the respondent Republic.
It was his submission that the appellant was caught red-handed lying naked on the top of C the child and that sperms was found on the child's vagina.
Mr Mbago, however, observed that going by the contents of the PF3, there was no penetration. It was therefore his submission that the offence of defilement was not proved beyond reasonable doubt. And that the evidence adduced disclosed the offence D of attempted defilement contrary to s 136(2) of the Penal Code. And that this is the offence which the appellant ought to have been convicted. He contended the appellant should now be convicted of that offence and sentenced accordingly. Mr Mbago also submitted that the appellant was not a young person in terms of the provisions of Cap 13. E
I have examined and considered the evidence on record as well as the appellant's grounds of appeal and I am satisfied that the evidence on record clearly established that the appellant was found red-handed lying naked on top of the child. See the evidence of PW1 which was amply supported in this regard by the evidence of PW2, and to some F extent by the evidence of PW3.

Sperm was also seen on the vaginal parts of the child, see the testimony of PW1, PW2 and PW3 and again this was also confirmed by the doctor who examined the child as the PF3 shows. G
The appellant contended at the hearing of the appeal that the girl in question was about fourteen years of age. This certainly is not true in the light of the clear evidence from PW1, PW2 that the girl was two years of age. And the appellant did not controvert this evidence at the trial. H
From this evidence, like the trial court, I am satisfied that the appellant sexually assaulted the child, Buya Sylivester.
The next issue for consideration is whether the full offence of defilement was established. The Trial Court found it to be have been established. I
I have also on my part considered this issue, and I tend to agree with Mr Mbago, learned State Attorney that from the evidence
1996 TLR p376
SEKULE J
adduced the full offence of defilement was not established. The PF3 shows that there A was no penetration for the doctor observed that there was no injury on or in the vagina of the child, except that a lot of sperm was seen on the vaginal parts. The victim as the evidence shows was a child of about two years of age. I am therefore inclined to the B view that if there was penetration, she should certainly have sustained some injury in her private parts. That she did not sustain any injury in her private parts, it is as already said a clear indication that there was no penetration. And in the circumstances, therefore, the full offence of defilement was not committed. C
It is, however, my considered opinion that the evidence adduced did disclose and establish beyond doubt the offence of attempted defilement, contrary to s 136(2) of the Penal Code.
I would and do hereby therefore quash the appellant's conviction for the offence of defilement and substituted therefore a conviction for the offence of attempted defilement. D
The appellant, though, did not commit the full offence of defilement on the child; in the sense that there was no penetration. This was but a question of luck not lack of resolve on his part to commit that ghastly act on the child. He behaved and acted beastly. The full offence of defilement under s 136(1) of the Penal Code attracts a maximum E sentence of life imprisonment with or without corporal punishment. And by virtue of Act 19 of 1992 it now attracts a minimum sentence of twenty years' imprisonment. It was therefore with respect wrong for the trial magistrate to impose a sentence of fifteen years for the full offence of defilement. F
The offence of attempted defilement contrary to s 136(2) of the Penal Code, the offence for which the appellant has now been convicted attracts a maximum sentence of fourteen years' imprisonment, with or without corporal punishment. I would therefore set G aside the sentence of fifteen years which was imposed for the full offence of defilement. But as observed though the appellant has now been convicted for the offence of attempted defilement; there is no doubt he acted beastly and acts of this kind must also be firmly discouraged. A deterrent sentence was therefore called for, I would H and do hereby sentence the appellant to a

sentence of ten years' imprisonment. The corporal punishment sentence imposed by the trial court is retained. This appeal partly succeeds and partly fails in the manner indicated above.
In essence the appeal is dismissed as specified above. I
1996 TLR p377
A
[zRPz]WILLOW INVESTMENT v MBOMBA NTUMBA AND ANOTHER 1996 TLR 377 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Mapigano J

B
MISC CIVIL CAUSE 34 OF 1996
13 September 1996
Flynote
Civil Practice and Procedure - Recognition and enforcement of foreign judgments - Jurisdiction C of court where provisions of Foreign Judgments (Reciprocal Enforcement) Ordinance, Cap 8 of the Revised Laws inapplicable - Common law applicable - Under common law, enforcement must be sought by bringing an action on the debt. D
-Headnote
The applicant sought the review of orders made in regard to the registration of a judgment granted in Zaire. The applicant contended that the Foreign Judgments (Reciprocal Enforcement) Ordinance, Cap 8 of the Revised Laws, was inapplicable and that certain irregularities attended the registration which rendered it invalid. E
Held:

(i) The provisions of Cap 8 were inapplicable. This however did not imply that the Court lacked jurisdiction to enforce a judgment given in Zaire. The Court's jurisdiction to enforce judgments given in foreign countries emanated from F statutory law, common law and treaties. In the absence of any such written law and treaty in relation to Zaire, judgments of that country were enforceable at common law in Tanzania on what had come to be known as the doctrine of obligation.

(ii) A judgment creditor who sought to enforce a foreign judgment at common law could not do so by direct execution of the judgment: enforcement had to be G sought by bringing an action on the debt. The proceedings instituted in the present matter were bad as they did not comply with this requirement.

Case Information
Registration of judgment, attachment and sale set aside. H
Maira for the applicant.
Nassor for the respondents.
[zJDz]Judgment
Mapigano, J:

Four companies figure in this matter. They are Willow Investment, OCS and Gecamines I which are resident in Zaire, and one called Marina Metal Works which is based in Kenya. Willow Investment
1996 TLR p378
MAPIGANO J
obtained a judgment in Lubumbashi for a colossal sum of US$336,073,260.00 against A OCS to which Gecamines is admittedly indebted to the tune of US$69,048,051.59, and that is the genesis for this case.
Upon an application brought by Willow Investment the foreign judgment was registered B by this Court on 9 August 1996, and on 15 August 1996 an order was made for the execution of the decree by attachment and sale of movable goods belonging to Gecamines which were lying at the Dar es Salaam port. The order was carried out and the goods were purchased by Marina Metal Works. The application was made under the C Foreign Judgments (Reciprocal Enforcement) Ordinance, Cap 8 of the Revised Laws and this Court proceeded on the footing that the Ordinance was applicable.
The Ordinance is designed to facilitate the direct enforcement of certain foreign judgments in Tanganyika. As the preamble says, it makes provisions for the D enforcement in Tanganyika of judgments given in foreign countries which accord reciprocal treatment to judgments given in Tanganyika, for facilitating the enforcement in foreign countries of judgments given in Tanganyika, and for other purposes connected E with such matters. It was passed in July 1935. In its original terms s 3(1) provided that if the Governor in Council is satisfied that substantial reciprocity of treatment would be accorded by a foreign country in respect of recognition and enforcement of judgments given in the superior courts of Tanganyika, he may by order direct that Part I of the Ordinance be extended to that country. F
By virtue and exercise of those powers the Governor in Council extended the benefits conferred by Part I to judgments given in the superior courts of the countries specified in the schedule to GN 8 and 9 of 1936. The power conferred on the Governor has passed G to the president in due course but the countries to which the benefits are extended have remained the same to date.
By s 4 a judgment creditor under a judgment to which Part I applies, may apply to the High Court to have the judgment registered in the High Court, and unless any of the circumstances stipulated in the Ordinance obtains the Court is obliged to order the H judgment registered. A judgment so registered is for the purposes of execution of the same force and effect and subject to the same control, and proceedings may be taken thereon, as if it had originally been given in Tanganyika. I
Gecamines is aggrieved by all the orders that have been made in regard to the registration of the judgment, the attachment of the
1996 TLR p379
MAPIGANO J
goods and the sale of the same. It has applied for the review of the orders and the A application is brought under the provisions of Order 42 of the Civil Procedure Code. Two material grounds have been submitted in support of the application.

The first ground is that the Ordinance, ie Cap 8 is inapplicable, and reference has been B made to the provision of s 3 and GN 8 and 9 of 1936. It is accordingly submitted that this Court has no jurisdiction to order a registration of a judgment given in Zaire and that, therefore, both the registration and the sale should be set aside.

The second ground is urged on the basis of a supposition that the provisions of the C Ordinance are applicable. It is that the registration and execution orders are impaired by palpable irregularities. The first point urged by Mr Nassor for Gecamines is that the existence of the conditions laid down under s 4(1) were not established. This has reference to the proviso that a judgment shall not be registered if at the date of the D application it has been wholly satisfied or it could not be enforced by execution in the country of the original court. In the counter-affidavit filed by Gecamines Mr Mutshipanguhas has deposed, vide para 3, that to the best of his knowledge the law in Zaire forbids the attachment of goods belonging to a parastatal body and that E Gecamines is one such body. Mr Nassor has cited s 88 of the Tanzania Railways Corporation Act, 1977 to substantiate his assertion that such situation is not peculiar to Zaire.

Secondly it is said that there was a non-compliance with the provisions of Rule 8 of GN 15 of 1936, which rule imperatively calls for the service of a written notice of the F registration of such a judgment on the judgment debtor which notice should also tell him that he has a right to apply on the grounds prescribed in the ordinance to have the registration set aside, and state the period within which he may do so. G

Thirdly, it is contended that the Court went wrong when it ordered the attachment of Gecamines' property without giving due notice to Gecamines and affording it proper opportunity to be heard.

On behalf of Willow Investment Mr Maira has conceded that the Ordinance is H inapplicable. But to him that does not in any way connote an absence of jurisdiction for the High Court to enforce the judgment. He has maintained that art 108(1) and (2) and s 2 of the Judicature and Application of Laws Ordinance, Cap 453, give the High Court power to order the registration and enforcement of the judgment in accordance with the I common law. He has suggested that the registration should have been sought and ordered under

s 95 of the Civil Procedure Code, and that the mistakes made in the registration and A enforcement of the judgment are mere irregularities.

Mr Maira has pointed out that Gecamines has been coupled in the proceeding not as Willow's judgment debtor but basically as Willow's judgment debtor's debtor, and that as B such Gecamines had no right of audience before the attachment was ordered. Counsel has referred this Court to Rule 45 of Order 21 of the Civil Procedure Code which provides for the attachment of debts which are due to judgment debtors. C

With regard to the sale Mr Maira has contended that as innocent purchaser of the goods for value Marina Metal Works cannot be prejudiced by whatever flaw that has attended the registration and sale of the goods. His authority is Rule 76 of Order 21 of the Civil Procedure

Code, which, I think, is better read along with Rule 2 of Ord 75. Mr Nassor D has countered by arguing that there is no occasion for this Court to invoke the provision of Rule 76 of Order 21.
It seems to me most of Mr Nassor's arguments are irresistible. I must agree that the provisions of Cap 8 are inapplicable. That does not, however, imply that this Court lacks E jurisdiction to enforce a judgment given in Zaire. The effect of s 8 of the Ordinance to which my attention has been drawn is merely that where a judgment is capable of registration under the Ordinance the judgment creditor is barred from instituting any other kind of proceeding for its enforcement, such as an action upon the judgment or a suit on the original cause of action. F
The jurisdiction of this Court to enforce judgments given in foreign countries emanates from statutory law, common law and treaties. In the absence of any such written law and treaty in relation to Zaire, judgments given in that country are, I think, enforceable at G common law in Tanganyika on what has become to be known as the doctrine of obligation. In accordance with that doctrine, where a foreign court of competent jurisdiction has adjudicated a certain sum to be due from one person to another, the liability to pay that sum becomes a legal obligation that is recognised and enforceable in H Tanganyika. The foreign judgment is strictly not enforceable as such, but is to be regarded as creating a simple contract debt enforceable by an action of debt. Once the judgment is proved, the burden would lie on the judgment debtor to show cause why he should not perform the obligation. This is consistent with s 11 of the Civil Procedure I Code. It follows that a judgment creditor who seeks to enforce a foreign

judgment at common law cannot do so by direct execution of the judgment. A Enforcement must be sought by bringing an action on the debt. The procedure obtaining in England would serve as a model. The evidence would be on affidavit and the defendant should be given proper opportunity of showing cause why the foreign B judgment should not be recognised or enforced. If a decree is ultimately passed in favour of the plaintiff, he may proceed to execute it in Tanganyika in the manner provided by the Civil Procedure Code.
For the foregoing reasons I have to hold that the proceeding for enforcement of the judgment was bad altogether. C
The position of the purchaser should be viewed in the light of the fact that there was no valid legal basis for the attachment of the goods. With due respect to Mr Maira, it is in my opinion a completely wrong idea that the provision of Rule 76 of Order 21 avails D Marina Metal Works. The scope of that rule is obviously limited. The rule pertains to only irregularities attending the mode of publishing and conducting the sale of the goods by public auction. It presupposes pre-existence of valid orders for attachment and sale. As, I think, sufficiently demonstrated, the mistake here is basic. The mistake fatally affects E the validity of the registration and enforcement of the judgment.
It is right and fair to grant this application. In the final event the registration of the judgment as well as the attachment and sale of the goods are set aside, and Gecamines will have its costs. F

A

[zRPz]FELIX RUTAZENGELERA v CO-OPERATIVE AND RURAL DEVELOPMENT BANK 1996 TLR 382 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Nyalali CJ, Makame JJA and Ramadhani JJA
B

CIVIL APPEAL NO 22 OF 1996
23 September 1996 C
(Appeal from judgment and decree of the High Court of Tanzania, Dar es Salaam, Chua J)
Flynote
Evidence - Presumptions - Entries in bankers' books - Effect of s 77 of Evidence Act 1967 D
Banking - Negligence by banker - What constitutes - Failure to act on instructions of customer where court order had frozen account
Banking - Effect of court order on deposit account
-Headnote
The appellant had instituted suit against the respondent bank in the High Court at Dar es E Salaam claiming damages as a result of negligence by the respondent bank in opening a deposit account as instructed by the appellant. The High Court dismissed the suit and the appellant accordingly noted an appeal contending that the trial Judge had erred in holding that the respondent was not negligent in failing to open the deposit F account. It appeared from the evidence that the appellant was a customer of the respondent bank and had deposited with the bank a personal cheque in an amount of Shs 14 million drawn on his current account with another bank. The money was part of a decretal sum paid to him by the High Court as a result of a suit in another matter. One of G the judgment debtors in that matter appealed to the Court of Appeal against the decision and on 29 December 1987, on the very day on which the appellant deposited the amount into his current account, an application for stay of execution was filed in respect of the pending appeal in that matter. The appellant instructed the respondent bank to transfer the amount into a deposit account durable for a month but the H respondent failed to comply with this instruction. On 20 January 1988 the High Court made an order that pending the application for stay of execution, monies were to remain where they were and the status quo was to be maintained. The respondent bank relied in part on a ledger card which made reference to a block on the funds in terms of a court I order dated 6 January 1988. Counsel for the appellant submitted that the presumption under section 77 of the Evidence Act, 1967, applied only
1996 TLR p383
to matters in the ordinary course of banking business and that in the present case the A presumption did not arise because it was not part of a banker's business to receive court orders.
Held:
(i) While it was true that it was not part of a banker's business to receive any court B orders, it was certainly the law that the account of a bank's customer was liable to court

attachment by garnishee order and the law in Tanzania was similar to that applicable in England. The presumption concerning the relevant entries was rebutted by two important factors, viz the court record produced at the trial disclosed no court order prior to that of 20 January. Neither was there C any trace of either the office file or the purported order mentioned in the bank's ledger card. In the light of the available evidence there could be no other conclusion than that the respondent bank received no court order prior to the order made on 20 January.

(ii) On the available evidence, the order must have been communicated to the D respondent bank soon after it was made, ie on or about 20 January 1988.

(iii) The effect of the order was that the deposit account in favour of the appellant was neither to be operated by the appellant nor to be utilized by the respondent bank and the result was that it frustrated the contract between the appellant and E the respondent bank before the date when the deposit account was expected to mature. The appellant's claim was accordingly flawed.

Case Information

Appeal dismissed. F

Semgalawe for the appellant.

Kalunga for the respondent.

[zJDz]Judgment

Nyalali, CJ:

Felix Rutazengelera, hereinafter called the appellant, instituted a suit in the High Court at G Dar es Salaam in respect of a sum of money which he had deposited with the Cooperative and Rural Development Bank, hereinafter called the respondent bank. The suit was for damages allegedly suffered by the appellant as a result of negligence by the respondent bank in opening a deposit account as instructed by the appellant. The High H Court, Chua, J dismissed the suit with costs. The appellant was aggrieved by that decision, hence this appeal to this court. Mr Semgalawe, learned counsel, appears for the appellant in this appeal, whereas Mr Kalunga, learned counsel appears for the respondent bank. I

The memorandum of appeal contains two grounds which state as follows:

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NYALALI CJ

A `1. The Trial Judge erred in fact and in law in holding that the respondents were not negligent in failing to open a deposit account for the appellant as they were complying with court orders and therefore the appellant was not entitled to claim damages and interest.

2. The Trial Judge erred in law deciding that there is no merit in the prayers of the appellant, one B being loss of profit in the appellant's business, the reason being that the Trial Judge wonders as to why the appellant took no steps to raise money from his other business to mitigate such a loss, and that the Trial Judge was left with the impression that the appellant C had deliberately inflated the value of the orders that the appellant missed and the profit that could have accrued if the appellant had been able to supply the timber.'

In the course of hearing this appeal, the second ground was withdrawn by counsel for D the appellant. From the proceedings both in this court and the court below, it is apparent that the following matters are not in dispute between the parties. At the material time, the appellant was a customer of the respondent bank, where he had a current account at its Lumumba branch. He was also a customer of the National Bank of Commerce where E he had another current account at its City Drive Branch. On 29 December 1987 the appellant deposited a sum of Shs 14,000,000/= by personal cheque drawn on his current account with the National Bank of Commerce. The money thus deposited was part of a decretal sum of Shs 16,474,176/70 paid to him by the High Court at Dar es F Salaam, being the proceeds of a decree made in High Court Civil Case No 92 of 1982, in which the appellant, using the name of Felix Bwogi, was the decree holder. One of the judgment debtors in that case, namely the Registrar of Buildings, appealed to the Court of Appeal against the decision of the High Court. On 29 December 1987, that is the very G day when the appellant deposited Shs 14,000,000/= in his current account at the Lumumba branch of the respondent bank, an application for stay of execution was filed in the High Court by the Registrar of Buildings in respect of the pending appeal. H

There is also no dispute that after depositing the cheque of Shs 14,000,000/= the appellant instructed the respondent bank to transfer that money into a deposit account durable for a month. The respondent bank failed to comply with the appellant's instructions. On 20 January 1988, the High Court, Kyando, J made the following interim I order in respect of the application for stay of execution:

1996 TLR p385

NYALALI CJ

A `The application for stay of execution is indeed filed so until it is determined, monies are to remain where they are and status quo is to be maintained as Mr Kesaria has prayed for.'

There is also no dispute between the parties that thereafter there was a series of communications between the appellant and the respondent bank in the course of which B the appellant was informed by the respondent bank to the effect that his instructions were not complied with because of a court order. There is also no dispute that the appeal by the Registrar of Buildings was eventually heard by the Court of Appeal. The appeal was partly successful. On 7 December 1989, the High Court directed the C respondent bank to transfer to the High Court a sum of Shs 16,474,176/70 standing to the credit of the appellant at the bank. The respondent bank transferred only what it had in favour of the appellant, that is, the sum of Shs 14,000,000/=. D

With regard to matters which are in dispute between the parties to this appeal, it is the appellant's case that the respondent bank was duty bound to comply promptly with appellant's instructions to open a deposit account for the sum of Shs 14,000,000/=. It is E part of the appellant's case that there was no court order which prevented the respondent bank from complying with the relevant instructions, but the respondent bank negligently failed to do so thereby causing the appellant to suffer material loss.

The respondent bank's case on the other hand is to the effect that soon after the appellant had given instructions in respect of the deposit account, a court order was F received blocking the

appellant's current account, with the result that the respondent bank was prevented from complying with those instructions.

The first important issue for consideration and decision in this case is whether the G respondent bank received any court order prior to the order made by Kyando, J on 20 January 1988. This issue was raised at the trial and in his judgment, the learned Trial Judge stated:

`Learned counsel for the plaintiff Mr Ukonga drew the attention of the court to the fact that the defence H had failed to render in court the order that the High Court had passed whose effect was to freeze the account of the plaintiff. I find the omission to have been a serious slip on the part of the defence. Nevertheless the omission was cured by the tendering of the court record which left no doubt at all on the fact that the plaintiff had been awarded the sum of 16.4 million shillings and that on 20 January I 1988 the High Court ordered that the money should be left where it was ...'

1996 TLR p386

NYALALI CJ

It is apparent that the learned Trial Judge found no evidence to suggest that a court order A existed prior to the order made on 20 January 1988. In the course of hearing this appeal, Mr Kalunga, learned counsel for the respondent, pointed to a document produced at the trial as Exhibit D2, being a copy of a ledger card in respect of the appellant's current bank account. The ledger card contains four significant handwritten B entries at different positions which read as follows:

Care. No withdrawal refer to chief manager 6 January 1988

No withdrawal C

Block as per High Court Order Ref No MC/S/Gen1/25 dd 6 January 1988

BLOCKED

Account closed and balance remitted to the High Court of Tanzania Box 9004 DSM vide our BP/Cheque No BP/012929 dd 14 December 1989 D

Garnishee Order dd 7 December 1989 from High Court of Tanzania regarding civil case No 92/82.

Mr Kalunga has submitted to the effect that these handwritten entries are evidence of the E existence of a court order made on 6 January 1988 by virtue of the provisions of s 77 of the Evidence Act, 1967 which states:

`Subject to this Act, a copy of an entry in a banker's book shall in all legal proceedings be received as F prima facie evidence of such entry and the matters, transactions and accounts therein recorded.'

Mr Semgalawe has counter submitted to the effect that the presumption under s 77 applies only to matters of ordinary course of banking business, and that in the present case the presumption does not arise because it is not part of a banker's business to G receive court orders.

With due respect, we think Mr Semgalawe's counter submission is misconceived. While it is true that it is not part of a banker's business to receive any court orders, it is H certainly the law that the account of a bank's customer is liable to court attachment by Garnishee Order. The law in

this country is similar to that applicable in England. According to EP Ellinger and E Lomnicka in Modern Banking Law, 2nd ed, p 339--340 the learned authors state: I

`At one stage there were doubts regarding the applicability of garnishee proceedings to accounts maintained with banks. In the case

A of current accounts the doubts were based on the fact that payment was due on demand ... The point was resolved in Joachimson v Swiss Bank Corporation, where Bankers, L J observed that the service of the garnishee notice on the bank operated as a demand.... From a commercial point of view, however, it is sound to enable a judgment creditor to levy execution against the balance standing to B the credit of his debtor's current account, as in practice the funds serve the same purpose as cash.'

The same learned authors state at p 340 in respect of deposit accounts: C

`... For the purpose of garnishee proceedings such accounts were traditionally divided into fixed deposits maturing at an agreed time, and deposit and savings accounts the balance of which was repayable subject to the giving of a minimum period of notice by the customer.... There was authority D for the general view that a debt owed by a bank to a customer and maturing at a given future date was `owing and accruing' and could be garnisheed, but that the amount could not be claimed by the garnishment creditor from the bank before the agreed maturity date ...'

That being the position, it is natural to expect a bank which receives a garnishee order, E to make an entry in its books in respect of a customer's account which is subjected to a garnishee order. The crucial point in this case, however, which ought to have been addressed by counsel for the appellant, is whether the circumstances in this case do F not rebut the presumption arising under s 77. We are satisfied that the presumption concerning the relevant entries is rebutted by two important factors. First, the court record which was produced at the trial disclosed no court order made by the High Court before the order by Kyando, J. Second, there is no trace of either the office file or the purported order Ref No MC/S/GEN1/25 dd 6 January 1988 which is mentioned in the G bank's ledger card. In the light of the available evidence there can be no other conclusion other than that the respondent bank received no court order prior to the order made by Kyando, J and we so find.

The next important issue is whether the Order by Kyando, J was received by the H respondent bank, and if so, what was its legal effect?

Mr Semgalawe, learned counsel for the appellant has submitted to the effect that there is no evidence to suggest that the court order made by Kyando, J on 20 January 1988 was received by the respondent bank. With due respect we think there are two pieces of I circumstantial evidence to the effect that the court order must have

been received by the respondent bank. The first piece relates to the circumstances and A the nature of the court order itself. The order was interlocutory and was made pending the hearing

of the application for stay of execution of court decree, pending appeal. Furthermore, the order was made in respect of money which was apparently moving B fast. According to the documents in the court record produced at the trial as exhibit D2, the appellant was paid the sum of Shs 16,474,176/70 on 24 December 1987 as per payment voucher No 127/12 in response to his letter dated 23 December 1987. Between C the date of that payment to the date of the application for stay of execution filed on 29 December 1987, that money moved from the High Court to the National Bank of Commerce and thence, a substantial part of it, to the respondent bank. It is obvious that the order by Kyando, J was a matter of urgency. We have asked ourselves whether under those circumstances it is likely that the order by Kyando, J would not be D communicated to the respondent bank.

The second piece of evidence concerns the conduct of the appellant. In his letter dated 22 June 1990 (Exhibit 7F) addressed to the Chief Manager of the respondent bank, the E appellant apparently conceded that the order by Kyando, J influenced the conduct of the parties. The fifth paragraph of that letter states:

`I only honour the court order issued by Kyando, J and this clearly means that all the transactions that took place from 31 December 1987, to the date of the aforesaid order were illegal, as far as two F accounts above referred were concerned.'

Furthermore, in the last paragraph but one, the appellant wrote:

`Finally, I refer to your letter of 24 May 1988 under ref No CRDB/General/TBM which to me was a G confession of your own negligence, because there was no instruction or order before 20 January 1988. I also refer you to my letter dated 21 May 1988, in which I asked you to give me a certificate of my fixed deposit account, but you neglected to do so.' H

We have carefully evaluated these two pieces of circumstantial evidence, and we are satisfied in our minds that the order by Kyando, J must have been communicated to the respondent bank soon after it was made-that is-on or about 20 January 1988. I

We turn now to the legal consequences of that order. It is established law that the relationship between a bank and its customer is

contractual. As stated by E P Ellinger and E Lomnicka in their Modern Banking Law, 2nd A Ed, p 108:

`The essence of the contract of banker and customer is, therefore, the bank's right to use the money for its own purposes and its undertaking to repay an amount equal to that paid in, with or without B interest, either at call or at a fixed time.'

Under the circumstances of this case, we have no doubt that a contract existed between the appellant and the respondent bank since 29 December 1987 in respect of Shs C 14,000,000/= in a deposit account which was to mature in a month's time. The question arises whether the deposit account matured as agreed or whether it was frozen as asserted by Mr Kalunga, learned counsel for the respondent bank.

Unfortunately the expression `freezing a bank account' does not seem to have been D judicially defined. However, we are certain in our minds that the terms of the order made by Kyando, J

that `... the monies are to remain where they are and status quo is to be maintained ...' means that the deposit account in favour of the appellant was neither to be operated by the appellant nor to be utilised by the respondent bank. E

That being the position, we are of the considered opinion that the effect of the court order was to frustrate the contract between the appellant and the respondent bank before the date when the deposit account was expected to mature on or about 29 January 1988. F The principle of frustration of contract is of course well-known under the common law. That principle has not been abolished in this country by the Law of Contract Ordinance, Cap 433, which appears not to cover all aspects of the law of contract. The question which arises here is what was the fate of the appellant's rights in the money deposited G under the frustrated contract? We are of the view that the appellant's rights in the principal sum and in any interest that may have accrued, were attached by the garnishee order. This means that from 20 January 1988, all that money standing to the credit of the appellant but not exceeding the sum of Shs 16,474,176/70 was subject to further directions of the court. Those directions came on 7 December 1989 when the H money was required to be remitted to the High Court. There is no evidence to show that there was any other money not covered by the court orders.

It is thus evident that appellant's claim is flawed. This appeal must fail and we hereby dismiss it in its entirety with costs. I

1996 TLR p390

A

[zRPz]TROPEX LTD AND ANOTHER v COMMISSIONER OF INCOME TAX AND OTHERS 1996 TLR 390 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Mapigano J

B

MISC CIVIL CAUSE NO 21 OF 1996

1 October 1996

Flynote

Income tax - Withholding tax - Objection to - Jurisdiction of court - Remedies provided by C sections 91 and 93 of Income Tax Act not appropriate for disputed application of s 34(2B)

-Headnote

The applicants, aggrieved by the imposition of withholding tax on them by the first D respondent in terms of section 34(2B) of the Income Tax Act, sought certain orders in the High Court against the respondents. The third respondent raised an objection to the proceedings, contending that the matter went beyond the cognizance of the court. It was contended that the High Court would not entertain such an application if an adequate remedy was otherwise available and that such other remedy was available in the form of E the mechanism provided by sections 91 and 93 of the Income Tax Act for addressing and determining such disputes. The applicant argued that this rule fettering the jurisdiction did not apply where, as in the present

case, a party had come to the Court with the contention that the imposition of the tax was wholly without the authority of the law and/or the alternative remedy was of an onerous and burdensome character. F

Held:

(i) A deduction made pursuant to section 34(2B) was not predicated upon an assessment of income tax by the Commissioner and was therefore not the kind of assessment envisaged by sections 91 and 93 and the applicants' G complaints were not amenable to the provisions of the Income Tax Act. The intended application was perfectly justiciable in the High Court.

Case Information

Leave granted to continue.

Cases referred to: H

1. R v Paddington Valuation Officer ex p Peache Property Corp Ltd [1965] 2 All ER 836

2. Hammatlas Harilal Mehts v State of Nadhya Predesh and others AIR 15 SC 403 I

Dr Kapinga for the applicants.

Songoro for the respondents.

1996 TLR p391

[zJDz]Judgment

Mapigano, J: A

The applicants are aggrieved by the decision of the first respondent, the Commissioner of Income Tax, contained in the two letters annexed to their statement, to impose withholding tax on them under the provision of s 34(2B) of the Income Tax Act, 1973 in respect of the auction sales of their coffee beans conducted by the second respondent, B the Tanzania Coffee Board, and to require the latter to deduct or collect the amounts and remit the same to him. They have come to this court to seek the prerogative orders of certiorari, mandamus and prohibition.

The third respondent, the Attorney-General who is joined in the proceeding by virtue of C the provision of the law has raised an objection, which is that the matter goes beyond the cognizance of this court. The point is urged upon the principle that the High Court will not entertain such application if an adequate remedy is otherwise available. On behalf of D the Attorney-General Mr Songoro, State Attorney has pointed out that there is a mechanism provided by the Income Tax Act, vide ss 91 and 93 for addressing and determining such disputes. Mr Songoro has accordingly submitted that the remedy provided by that Act is the proper remedy which ought to be resorted to by the applicant, and that therefore, leave to seek the prerogative orders should be refused. E

Dr Kapinga, counsel for the applicants sees things differently. His proposition is that the principle that the jurisdiction of the High Court would be fettered by the availability of an alternative remedy does not apply here, as in this case, a party has come to the court F with a contention that the imposition of the tax is wholly without the authority of the law and/or where, like in the instant case, the special or alternative remedy is of an onerous and burdensome character. Dr Kapinga has drawn on two authorities to bolster up his opinion, ie R v

Paddington Valuation Officer Hammatlas Harilal Mehts v State of Nadhya G Predesh and Others (2). Counsel has also referred this court to the provision of s 93(5) of the Income Tax Act which makes the lodging of an appeal against the decision of the Commissioner conditional to the assessee's depositing half of the whole amount of tax assessed together with any interest due under s 101. H

Section 34(2B) of the Income Tax Act provides as follows:

`Every person shall upon payment of any amount to any person in respect of any fee, charge or like I consideration for goods supplied or services rendered, which is chargeable to tax, deduct from that amount ax at a rate of two per cent of the gross amount payable.'

1996 TLR p392

MAPIGANO J

It is elucidated under ss (2C) that the requirement prescribed above only applies to A payments made by the Government agency, local government authority, parastatal organisation and companies.

The point urged by the applicants is essentially that the section was misconstrued and misapplied by the Commissioner, because no payments have been made by the B second respondent in respect of the subject matters of the impeached intended deductions. This is a troublesome and momentous point, and that probably explains why the Annexures seem to evince a state of uncertainty on the part of the Commissioner demonstrated by his approbation and disapprobation. I am satisfied that the applicants C have a good arguable case against the decision and directive of the Commissioner which deserves serious consideration, and it is relevant to observe that the Attorney-General appears to hold the same view.

The decisions cited by Dr Kapinga strongly support the proposition that where the whole D basis of a decision or action of a public body or official is impugned, and where the alternative remedy provided by a statute is not convenient, beneficial and effectual as the prerogative remedies, the High Court can entertain an application to review the impugned decision or action and upon the merits of the particular case make or refuse E to make the prerogative orders. The two decisions are highly persuasive authorities, and no one can deny that they are entitled to the highest respect, considering the ranks of the courts which pronounced them, ie the Court of Appeal of England and the Supreme Court of India. I respectfully adopt the views expressed therein as correct. F

Dr Kapinga would have me find that the present case comes four square within the principle restated in those two cases. But Mr Songoro thinks otherwise, and the question I have to decide is whether there is really a machinery given by the Income Tax Act for G questioning the decision and directive of the Commissioner impugned in this application. As shown, Mr Songoro has relied on the provisions of ss 91 and 93 of the Act.

Those provisions relate to objections to assessment of income tax made by the commissioner in terms of part XIV of the Act, and to the rights of appeal to the Appeals H Board and Tribunal in that connection. The vital question is whether there has been any such assessment here. In fine, the applicants contend, by para 16 of their statement which appears at p 12 but which should be renumbered para 17, that a deduction made under s 34(2B) is not an assessment of income tax,

and that there is nothing in the Act I which provides for any remedy against an erroneous deduction of tax made under the section.

1996 TLR p393

MAPIGANO J

That is an attractive point, and it is interesting, gratifying and significant that in one of the A annexures, ie the letter dated 6 February 1996, the Commissioner has more or less expressed the same view. This is what he states in para 7:

`Let me mention in passing that withholding tax from payments in respect of goods or services is B merely a mechanism of payment of advance tax which is ultimately set off from he final income tax liability chargeable on the assessee in the respective year of income. In case any such assessee ... is aggrieved on the tax assessed when served with a final notice of assessment, the assessee is at C liberty to dispute the assessment pursuant to s 91 and 93 of the Income Tax Act, 1973.'

I understand this to imply that it is premature for the applicants to seek the remedy given by ss 91 and 93. If that is the case, then in my judgment it underscores the idea that a D deduction made pursuant to s 34(2B) is not predicated upon an assessment of income tax by the Commissioner, and is thus not the kind of assessment which is envisaged by ss 91 and 93.

I accept the idea that the applicants' complaints are not amenable to the provisions of the Income Tax Act. E

I hold, therefore, that the intended application is perfectly justifiable in this court. Leave is accordingly granted.

1996 TLR p394

A

[zRPz]NATIONAL BANK OF COMMERCE v METHUSELA MAGONGO 1996 TLR 394 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Mnzavas JJA, Mfalila JJA and Lubuva JJA

B

CIVIL APPEAL NO 30 OF 1994

2 December 1996

(From the ruling and order of the High Court of Tanzania at Mwanza, Munyera, J.) C

Flynote

Court of Appeal Rules - Record of Appeal not incorporating an extract of the order appealed against - Whether appeal is competent - Rule 89 of the Court of Appeal Rules, 1979. D

-Headnote

At the commencement of the hearing of this appeal it transpired that the record of appeal did not incorporate the order of the High Court appealed against:

Held:

E (i) Under rule 89(1)(h) of the Court of Appeal Rules, 1979, it is mandatory for the record of appeal to contain copies of the documents listed therein one of which is the order appealed against;

(ii) Since the record of appeal does not incorporate the order appealed against the record is incomplete and the appeal is incompetent.

Case Information

Appeal struck out. F

Cases referred to:

1. Abdul Aziz Ali Salim v Hafsa Saleh Mahmoud, CAT, Civil Appeal No. 4 of 1992 (unreported)

2. Euroconsult (Africa) B.V v French & Hastings, CAT, Civil Appeal No. 20 of G 1996 (unreported)

Banturaki, for the appellant

Kahangwa, for the respondent

[zJDz]Judgment

Lubuva, JA: H

At the commencement of the hearing of this appeal following the court's prompting it transpired that the record of appeal was not complete. That is, the record of appeal did not incorporate an extract of the order of the High Court dated 2 August 1990 appealed I against. When called upon to address the court on this point, Mr Banturaki, learned counsel for the appellant was appar-

ently not quite clear on the effect of non-compliance with Rule 89 regarding the extract of A the order. He seemed to be of the view that as the ruling appealed against was already part of the record at p 28 of the proceedings, it was not necessary to have it extracted and itemised in the index. However, on further reflection, he correctly in our view B conceded that the record of appeal was incomplete contrary to the provisions of Rule 89(1)(h) of the court's rules. In these circumstances, Mr Banturaki left the matter for the court to decide.

For the respondent, Mr Kahangwa, learned counsel was brief and precise. He stated that C the omission to incorporate the extract of the order appealed against was a violation of a mandatory requirement of Rule 89 of the court's rules. For this reason, he urged the court to strike out the appeal which, he said was incompetent.

The need for stringent and vigorous adherence to the court's rules in the processing of D appeals before this court hardly needs to be overemphasised. There is a series of decisions of this court to that effect. Time and again we have struck out appeals in which the records of appeal do not incorporate either the decrees or orders appealed against. Among others see for instance: (1) Abdul Aziz Ali Salim v Hafsa Saleh E Mahmoud and (2) Euroconsult (Africa) BV v French & Hastings.

In these cases, we struck out the appeals on the ground that the records were incomplete contrary to the requirement of Rule 89.

In the instant case, the appeal arises from the ruling of the High Court at Mwanza F (Munyera, J) dated 2 August 1990. Under the provisions of Rule 89(1)(h) it is a mandatory requirement for the record of appeal to contain copies of the documents listed therein one of which is the order appealed against. This was not included and Mr Banturaki had no plausible explanation for it except that he said it was due to an G oversight. Neither did he apply to be allowed to file a supplementary record in order to rectify the matter. In view of the mandatory requirement of the Rule 89, a fact which is as already pointed out was conceded by Mr Banturaki, there is no way in which we can proceed with this appeal based on an incomplete record. H
Accordingly under Rule 3 of the court's rules, the appeal is struck out. No order as to costs.

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4. The Hon. Mr. Justice W. Dourado Puisne Judge

Cases Reported
1995 TLR p1
A
[zRPz]ABDUL ABDALLAH v REPUBLIC 1995 TLR 1 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mnzavas JJA, Mfalila JJA and Lubuva JJA

CRIMINAL APPEAL 91 OF 1993 B
March 21, 1994
(Appeal from the decision of the High Court of Tanzania at Dar es Salaam, Rubama, J.) C
Flynote
Criminal Practice and Procedure - Sentencing - Accused sentenced under a law not in existence when the offence was committed - Sentence illegal. D
-Headnote
The appellant was charged with and convicted of robbery. He was sentenced to thirty years imprisonment under Act No 10 of 1989 which came into operation 10 days after the appellant committed the offence. The High Court upheld the trial court's sentence. Exercising its revisional powers the Court of Appeal considered the question of sentence imposed on the appellant. E
Held: As Act No.10 of 1989 was not meant to apply ex post facto it was clearly wrong for the two courts below to sentence the appellant under a law which was not in existence at the time he committed the offence.
Case Infomation
Order accordingly. F
No case referred to
Miss Munisi, for the respondent
[zJDz]Judgment
Mnzavas, J.A., read the following order of the court: G

The appellant, Abdul Abdallah, was convicted of the offence of robbery with violence contrary to s 285 of the Penal Code by Kinutu Resident Magistrate's Court and sentenced to thirty years imprisonment. On appeal to the High Court the decision of the district court was upheld and the appeal dismissed. H

Still dissatisfied he has come to this Court. Before us Miss Munisi, learned State Attorney, raised a preliminary objection and argued that the notice of appeal was lodged out of time and asked us to strike out the appeal as being incompetent. When the Court asked the learned state attorney whether she had anything to say about I

1995 TLR p2

MNZAVAS JA

A the sentence of thirty years imprisonment she conceded that the sentence was illegal as the offence was committed before Act No 10 of 1989 came into operation and asked the Court to use its powers of revision in dealing with the unlawful sentence.

B With respect we agree with the learned state attorney that the notice of appeal is hopelessly out of time as it was filed 14 April 1993 over one year after the judgment of the High Court was delivered on 10 February 1992. Rule 61(1) of the Court of Appeal Rules required the appellant to file his notice adopted within 14 C days of the date of the High Court decision. The appeal before us is therefore imcompetent. However, in exercise of our powers of revision under s 4(2) of the Appellate Jurisdiction Act, 1979, as amended by Act No 17 of 1993 it is our considered view that the sentence of 30 years imprisonment imposed by the district court and upheld by the High Court was clearly illegal. The charge shows D that the offence of robbery was committed on 11 May 1989. At that time the law applicable was the Minimum Sentence Act 1972 which provided under s 5(b) a minimum sentence of seven years imprisonment for robbery. Act No 10 of 1989 under which the appellant was sentenced to thirty years imprisonment for the offence of robbery came into operation on 21 May 1989 - ten days after the E appellant committed the offence. As Act No 10 of 1989 was not meant to apply ex post facto it was clearly wrong for the two courts below to sentence the appellant under a law which was not in existence at the time he committed the offence.

F It is our view that there was ample evidence in support of the conviction but as we have already mentioned, the sentence of thirty years imprisonment was illegal; and, in the exercise of our revisional powers we set it aside and in substitution therefore the appellant is sentenced to seven years imprisonment.

1995 TLR p3

A

[zRPz]MOHAMED SAID MATULA v REPUBLIC 1995 TLR 3 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Kisanga JJA, Omar JJA and Lubuva JJA

CRIMINAL APPEAL NO.193 OF 1993 B

April 11, 1994
(From the decision of the High Court of Tanzania at Dar es Salaam, Maina, J.) C
Flynote
Evidence - Contradictions and inconsistencies in testimonies of witnesses - Duty of trial court to address them
Evidence - Burden of proof - Burden of proof in a charge of murder - Burden is always on the prosecution to prove charge D
Criminal Law - Murder - Presumption of murder - Child stolen and never seen again - Whether conviction for stealing the child is sufficient to conclude that the child is dead and the person convicted of stealing the child is responsible for the death. E
-Headnote
The appellant, who was the stepfather of one Adnani Mohamed was charged with and convicted of murder of the said Adnani Mohamed contrary to s.196 of the Penal Code. It was alleged by the prosecution that the appellant had a family misunderstanding with his wife, the mother of Adnani. He went to the nursery school where Adnani was a pupil and lured him away on the pretext that he was going to buy him some buns. Adnani has not been seen since. The appellant was F charged with and convicted of child stealing and sentenced to three years imprisonment. Subsequently, he was charged in the High Court with the murder of the child and convicted and sentenced to death, essentially because he was the one who lured away the child from the nursery school and further that since then the child has not been seen. G
Held:
(i) Where the testimonies by witnesses contain inconsistencies and contradictions, the court has a duty to address the inconsistencies and try to resolve them where possible; else the court has to decide whether the inconsistencies and contradictions are only minor, or whether they go to the root of the matter. H
(ii) Upon a charge of murder being preferred, the onus is always on the prosecution to prove not only the death but also the link between the said death and the accused; the onus never shifts away from the prosecution and no duty is cast on the appellant to establish his innocence. I
1995 TLR p4
KISANGA JA
A (iii) Even if it was conclusively established that the Appellant stole the child Adnani, that could not properly lead to the conclusion that the said child is dead, and that the appellant is responsible for the death of that child.
Case Infomation
Appeal allowed
B No case referred to
N. Mselem, for the Appellant
J.B. Tendwa, for the Respondent.
[zJDz]Judgment
C Kisanga, J.A., delivered the following considered judgment of the court:

The appellant was charged with and convicted of murder contrary to s 196 of the Penal Code and sentenced to death by the High Court (Maina, J) sitting at Dar es Salaam. He has now appealed against both conviction and sentence. D

The background to this case may be set out briefly as follows: The appellant was the stepfather of one Adnani Mohamed in that he was for some time married to Adnani's mother (PW1) but later the marriage was dissolved at the instance of E PW1. Adnani was born before the marriage between PW1 and the appellant, and the said marriage was blessed with one daughter named Sauda. Upon the dissolution of the marriage the appellant was also ordered to provide Shs 400/= per month for Sauda.

F Following the dissolution of the marriage, PW1 left the matrimonial home and went to live with her sister in the same locality, taking with her the two children Adnani and Sauda. It is claimed that the appellant resented the act of PW1 obtaining a divorce against him, and on that account he nursed a grudge. Thus G within two weeks of the divorce the appellant went up to PW1 and uttered threats to kill her. It is further claimed that on the following day the appellant went to the nursery school where Adnani, then aged about ten years, was a pupil and lured him away on the pretext that he was going to buy him some buns. Adnani has nor H been seen since. The appellant was charged and convicted in the district court for stealing the child Adnani and was sentenced to three years' jail term. Subsequently he was charged in the High Court with the murder of the said Adnani. As intimated earlier, he was convicted as charged and sentenced to death, hence this appeal.

I Before us the appellant is represented by Mr Mselem, learned advocate, and Mr Tendwa, Senior State Attorney, appears for the

respondent Republic. Mr Mselem filed three grounds of appeal the substance of A which was that death of the said Adnani was not proved sufficiently or at all and that even if it was, the appellant cannot be said for certain to be connected with such death.

The evidence adduced in support of the charge was wholly circumstantial. In B convicting the appellant the learned Trial Judge found that Adnani was last seen alive in the company of the appellant on 3 February 1986; he has not been seen again from that day. Since it was more than five years following such disappearance, and since the appellant could give no explanation of such disappearance, the learned judge, acting under s 117 of the Evidence Act C presumed that Adnani is dead, and further found the appellant to be responsible for such death. He found pieces of circumstantial evidence which connected the appellant sufficiently with Adnani's death. These consisted of the appellant's anger due to PW1's act of obtaining divorce against him, the appellant's threat to kill PW1 and the appellant's conviction by the district court for stealing the child Adnani and the prison sentence imposed thereon from which the appellant preferred no appeal. D

The finding that the child Adnani was last seen in the appellant's company on 3 E February 1986 was based on the evidence of PW3 and PW4 both being persons of tender age of about 12 years and who had attended the nursery school with Adnani. They testified that on the day in

question the appellant, whom they did not know before, went to their school and took Adnani away claiming that he was Adnani's father and that he was going to buy Adnani some buns. The two children F later identified the appellant at an identification parade arranged by the police. The Trial Judge was impressed by the demeanor of both witnesses, he found them truthful and said that if their evidence required corroboration then in terms of s 127(4) of the Evidence Act each of them corroborated the other. G

Mr Mselem strongly criticised the Trial Judge for accepting and acting on the evidence of the two children. He charged that their evidence involved inconsistencies and contradictions which sufficiently rendered that evidence unreliable and completely worthless. We think there is some justification in this H criticism. PW4 claimed that he could identify the appellant as the one who took away Adnani from the nursery school because he (the appellant) had a scar on his forehead. At the time of giving evidence in court, however, he stated that he could find no such scar on the appellant's forehead. Then the question is, what happened to the I

A scar? PW6 is the other child who also claimed to have seen the appellant take away Adnani from the school. He makes no mention of any scar on the appellant. Again the question is, if the witnesses are talking of one and the same person why should one only, and not both, have noticed the scar? The same witness PW4 stated that he made a statement to the police one month after seeing the appellant B at the school. This would be around March 1986. But the said police statement which he himself acknowledged to be his is dated 4 November 1987. That is to say, he made it to the police well over one and a half years following the incident at C the school. Again the question is, what is the explanation for this marked difference in the time of making the police statement? The witness further stated that during the identification parade at the police station there were three rows of people from which he could identify the appellant. Yet other prosecution evidence as supported by that of the appellant shows that there was only one row or line of people. No explanation is given for such discrepancy.

D Turning now to PW3 he stated that during the identification parade there were two lines or rows of people which, as already demonstrated was not true: there was only one line. He also claimed that the identification parade was conducted in 1989 which contradicts the evidence of the police officer (PW5) who said that he conducted the parade in 1986. E

Such were the inconsistencies and the contradictions involving the evidence of the F two children on which the appellant's conviction was largely based. In his evaluation of the evidence the learned judge made not a single reference to these inconsistencies and contradictions. Nor did he make any mention of them in his summing up to the assessors. He merely accepted the evidence of the two G children at its face value. That was clearly wrong. He had a duty to consider the inconsistencies and contradictions and try to resolve them if he could. Else he had to decide whether the inconsistencies and contradictions were only minor or H whether they were such as did go to the root of the matter. Mr Tendwa, learned Senior State Attorney, who sought to support the conviction, submitted that the inconsistencies and contradictions were not material and therefore were of no consequence. With due respect to learned counsel, we think

differently. Had the learned judge directed himself and the assessors on the issue as indicated, we are unable to say for certain that he would have found the two children truthful and would have accepted their evidence without any reservation as he did. More so especially considering that the children who gave evidence not on I

1995 TLR p7

KISANGA JA

oath were testifying to events which took place when they were aged only about A seven years. While still on the evidence of these children, there is one aspect of it which is not consistent with the evidence of Adnani's mother (PW1). She said that on the day her son disappeared she went to the nursery school and upon inquiring she was informed by one teacher that he (the teacher) had not seen Adnani and that B Adnani's name was not recorded in the daily attendance Register. The said teacher, or for that matter, any other teacher from that school, was not called as a witness. But the question is, if according to the two children, PW3 and PW4, C Adnani went to school with them, why was his name not in the daily attendance register? This was yet another feature in the prosecution evidence which was not entirely satisfactory and which was never considered or referred to by the Trial Judge. D

It seems obvious to us that the link between the appellant and Adnani's alleged disappearance on 3 February 1986 was most essential, but in the absence of any cogent evidence to establish such link the charge against the appellant could not possibly be sustained. The other pieces of circumstantial evidence available tend to implicate the appellant only lightly or remotely. Take for instance the appellant's E conviction in the district court for stealing the child Adnani in respect of which a prison term of 3 years was imposed, and the fact that the appellant did not appeal. Relying on s 43A of the Evidence Act, 1967 the learned Trial Judge found it to be conclusively proved that the appellant stole the child Adnani. Then attaching F considerable weight to this, the judge took the view that since the appellant's defence to the present charge consisted of a mere denial, then in terms of s 117 of the Evidence Act the child Adnani is properly presumed to be dead and further that the appellant is properly to be held answerable for Adnani's death. With due G respect to the learned judge, however, this does not necessarily follow. Even if it be conclusively established that the appellant stole the child Adnani, that could not properly lead to the conclusion drawn by the learned judge. For, it is one thing to steal a child but quite another to kill it. The appellant after stealing the child may H have passed it on to some other person or persons for purposes not connected with killing. The appellant might or might not know what that other person subsequently did with the child, but upon a charge of the murder of that child the onus is on the prosecution to prove not only the death of the child but also the connection or link between the appellant and such death. In a criminal case like this I

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KISANGA JA

A one that burden is always on the prosecution; it never shifts and no duty is cast on the appellant to establish his innocence.

Likewise the evidence of the appellant's threat to kill PW1 does not advance the case for the prosecution any further. In the first place, since the appellant's threat was to kill PW1, it is not apparent why the appellant should choose to execute it on B PW1's young and innocent child rather than on PW1 herself. In any case such threat could not exclude the possibility of some other person or persons committing evil acts or mischief against PW1 or her son.

C Upon our careful study of the record, we have come to the conclusion that the evidence so far adduced fell far short of proving the charge brought against the appellant.

We accordingly allow the appeal, quash the conviction and set aside the sentence, with an order for the appellant's immediate release from prison unless he is otherwise lawfully held. D

1995 TLR p8

E

[zRPz]INCAR TANZANIA LTD v MAGUGU FARM LTD AND COOPERATIVE AND RURAL DEVELOPMENT BANK 1995 TLR 8 (CA)

Court F Court of Appeal of Tanzania - Dar Es Salaam

Judge Kisanga JJA, Ramadhani JJA and Lubuva JJA

G CIVIL APPEAL NO 30 OF 1993

July 13, 1994

(From the decision of the High Court of Tanzania at Arusha, Nchalla, J.)

Flynote

H Sale of Goods - Contract of sale of unascertained goods by description - When property passes from seller to buyer

Sale of Goods - Passing of property - Goods appropriated to the contract but seller has yet to do pre-delivery service and to obtain customs clearance certificate for the goods - Whether property in the goods passes. I

1995 TLR p9

KISANGA JA

-Headnote

In a contract concluded in Arusha the appellant agreed to sell a set of farm A implements to the first respondent, delivery of the same to be effected in Dar es Salaam. Part of the contract price was paid through a loan from the second respondent. After payment of the contract price the first respondent's Managing Director travelled to Dar es Salaam to take delivery of the goods but he could not because they were not yet ready for collection; some pre-delivery services had to be done to them and a customs clearance certificate obtained. He was asked to B go and come back a number of times and each time the implements were not ready. He even threatened to rescind the contract. Finally, the implements were consigned to the appellant's office in Arusha, with the first respondent's Managing Director, anxious to speed up the process, giving a lot of assistance. The railway C wagon carrying the consignment to Arusha had an accident on the way causing damage to a tractor, which was part of the implements bought, and on account of

which the first respondent refused to accept the goods. The respondents sued for breach of contract before the High Court and were successful. On appeal the appellant sought to convince the court that when the accident occurred, property in the goods had already passed to the first respondent. D

Held:

(i) Where there is a contract of sale of unascertained goods by description and goods of that description in a deliverable state are unconditionally appropriated to the contract, property in the goods thereupon passes to the buyer; E

(ii) The contract in this case was for the sale of unascertained goods by description but their appropriation to the contract was not unconditional; it was subject to the appellant doing some pre-delivery services to them and obtaining a customs clearance certificate, and property in the goods, therefore, did not pass from the appellant to the first respondent; F

(iii) Since the consignor of the goods was the appellant's office in Dar es Salaam and the consignee was the appellant's office in Arusha, the appellant remained the owner of the goods notwithstanding that the said goods had been appropriated to the contract; G

(iv) As the appellant company failed to deliver the farm implements in accordance with the terms of the contract, it was in breach of the contract.

Case Infomation

Appeal dismissed

No case referred to. H

R.C. Kesaria and J.C. D' Souza, for the appellant

M. Maira and W.A.L. Mirambo, for the respondent

[zJDz]Judgment

Kisanga, J.A.: delivered the following considered judgment of the court: I

1995 TLR p10

KISANGA JA

A This appeal arises from the decision of the High Court (Nchalla, J) allowing the respondents' claim based on a breach of contract for the sale of goods. The background to the case may be summarized briefly as follows: Under a written contract, Incar Tanzania Ltd, Arusha, the appellant in this appeal, agreed to sell a B set of farming implements to the first respondent company. The implements consisted of a Fiat tractor, a harrow and a chisel plough. The contract was concluded at Arusha and delivery of the equipment was to be effected in Dar es Salaam. The contract price was paid partly through a loan of Shs 4,000,000/= C from the Co-operative and Rural Development Bank (CRDB), the second respondent, and partly from the first respondent's own resources in the sum of Shs 202,000/=. After the contract price was paid PW1, managing director of the respondent company, travelled to Dar es Salaam to take delivery of the D implements there only to find that the items were not ready for collection. There was yet to be done pre-delivery service to these implements and a customs clearance certificate in respect of them was yet to be obtained. It was not possible to register the tractor before a customs clearance certificate was obtained in E respect of it by the appellant company. The respondent was asked to go and come back a number of times but on each occasion he found the implements

not yet ready for collection. Out of frustration he treatened to rescind the contract and demanded a refund of the purchase price which he had paid at Arusha; but in vain.

F Thereafter the appellant company alleged that PW1 decided to take delivery of the implements despite the absence of a customs clearance certificate. PW1, however stated that a new arrangements was reached whereby he was to travel back to Arusha and the appellant company was to transport the implements to its Arusha branch where he (PW1) was to take delivery of the same. The Trial Judge believed the version of PW1; we think he was entitled so to do. G

Again the appellant company asserted that on PW1's own request, it took the implements to the railway station, Dar es Salaam and loaded them on a railway wagon chosen by PW1 himself, for transportation to Arusha. The consignment so H loaded included a trailer sold by the appellant to one Mr Mario Gikas of Arusha. The appellant claimed that before PW1 left Arusha for Dar es Salaam, Mr Gikas had arranged with him (PW1) to transport his trailer to Arusha. On the basis of such arrangement, the appellant went on, it (the appellant) handed over the trailer to PW1 in Dar es Salaam who duly made his own arrangements to transport it to- I

gether with his own implements to Arusha. PW1, however, denied completely A making the alleged arrangement with Mr Gikas, adding that at the time material to this suit Mr Gikas was not an acquaintance of his. Yet Mr Gikas was not called in support of the alleged arrangement with PW1 for the transportation of his trailer.

According to PW1, however, it is the appellant company which undertook to B transport the implements to Arusha, but as he was anxious that the implements should reach Arusha as soon as possible he did a number of things, on being asked by the appellant company, in order to facilitate or speed up the process. Thus for instance he was sent to look for a railway wagon on which to load the C implements, although the one he found proved to be too small and the appellant had to look for another one as an alternative. He also paid the charges for hiring the wagon and for the guard to escort the goods on a promise that these payments, altogether amounting to Shs 81,220/=, would be refunded to him by the appellant's office at Arusha. Upon making those payments, he signed a D consignment note which shows the sender of the goods to be Incar Tanzania Ltd Dar es Salaam and the consignee to be Incar Tanzania Ltd Arusha. The consignment note also shows the goods to have been loaded by the sender. PW1 E took the consignment note to the appellant's office in Dar es Salaam. There he was instructed to take the said consignment note together with the cash receipts in respect of payment for transport and escort charges and the contract documents to the appellant's office at Arusha where the implements would be delivered to him. He did as instructed. Upon handing over the documents to the F appellant's office at Arusha he was asked to go away and that the office would take delivery of the implements, register the tractor in the name of his company and CRDB and then deliver it to him. In the meantime PW1, on behalf of his company entered into a contract to plough 200 acres of land for one Mr K Patel. G He did this in anticipation of the new tractor because although he had seven other tractors these were old and were not enough to carry out

the ploughing contract. The learned Trial Judge accepted PW1's account in preference to the claim by the appellant that PW1 received the implements in Dar es Salaam and took it upon H himself to transport them to Arusha. He found that it is the appellant company which sent the implements in question together with Mr Gikas's trailer as a single dispatch consigned from the appellant's office in Dar es Salaam to its Arusha office.

Following the handing over of the documents by PW1 at the appellant's office in Arusha, a representative of the appellant's of- I

1995 TLR p12

KISANGA JA

A fice there visited the Railways Office at Arusha a number of times to inquire if the consignment had arrived, and at least on one occasion he also telephoned their head office in Dar es Salaam which confirmed that the goods had been dispatched. Subsequently he was informed by the Railways Office Arusha that the wagon carrying the consignment had sustained an accident at a place called B Hedaru, a long distance away from Arusha. He drove all the way to Hedaru to view the scene for himself without asking PW1 to accompany him or informing him about the accident. He noticed that the tractor had been damaged in the course of the accident.

C After the consignment had reached Arusha, the railway authorities duly advised the appellant as the consignee to collect the goods. The appellant did so, after showing some reluctance, and also paid demurrage charges arising from the delay in collecting the goods. The appellant then asked PW1 to take delivery of the D implements but according to the appellant PW1 refused to do so because of the damaged tractor. The damage was estimated at Shs 300,000/= being the cost of purchasing the necessary spares, plus about a half that amount being labour charges. PW1 was asked to bear the cost of buying the spares while the appellant would bear the labour charges. PW1, however refused and insisted on replacement of the tractor, and since no agreement could be reached, the respondent brought this suit alleging breach of contract and asking for the following reliefs: E

`(i) The plaintiff claims specific performance by the defendant of the plaintiffs written contract to deliver the said TRACTOR, HARROW and CHISEL PLOUGH as specified in the contract marked annexture `A'. F

(ii) Damages for loss of use of the said farm implements by the plaintiffs at the rate of Shs 20,000/= per day from the day of non-delivery to the date of judgment.

(iii) Damages for loss of contract of ploughing 200 acres between M/s Magugu Farm Ltd and Niru Patel at the rate of Shs 2,000/= per acre totalling Shs 400,000/= see attached copy of contract between M/s Magugu Farm & Niru Patel. G

(iv) Costs of this action.

(v) Interest at court rate in damages and costs from non-delivery till payment in full. H

(vi) Any other relief or further relief as the nature of this action may admit.'

Upon finding that the appellant had failed to deliver the implements in accordance with the terms of the contract, the Trial Judge gave reliefs set out in the decree as follows: I

1995 TLR p13
KISANGA JA

`It is ordered that the plaintiffs are entitled to, and are awarded the following reliefs: A

(1) Specific performance, if the same is feasible, plus general and special damages, including costs and interest as claimed and set out here below; or

(2) Refund of the Shs 4,283,420/= to the 1st plaintiff (PW1) being prepaid price, plus the B difference between the prepaid price and the full market price of the goods as at 15.8.89 with interest at bank rate from the date of payment of the purchase price on 24.7.89 till final payment. Thereafter if PW1 finds it reasonable to purchase similar goods elsewhere because the type and make of the goods (New Fiat tractor 100 horse C power) he had contracted for is or may not be available, he can do so with the money refunded to him, excluding the interest on the purchase price or principal sum and he may charge the defendant company with the difference, if any, in price; and D

(3) Special damages under head (ii) of the reliefs. These damages are to be computed in the following manner, that is to say Shs 20,000/= per day from 15.8.89 to 31.12.89. And thereafter for each succeeding year till the date of full payment, computation shall be Shs 20,000/= per day from July, to December, respectively. It is considered that during E the months of April to June annually, ploughing almost ceases in Arusha zone, and transportation dwindles, hence the reduction to Shs 10,000/= from the Shs 20,000/= daily rate earnings for that period. Also there will be a deduction of 40% from the total sum to be realized under this head to cater for mitigated damages and for service of the tractor; and F

(4) Special damages in the amount of Shs 400,000/= for loss of ploughing contract (Exh P7) as indicated under head (iii) of the reliefs, however, less 50% to cater for mitigated damages; and

(5) Costs to be taxed; and G

(6) Interest on damages and costs at court rate and in the appropriate scale effective from the date of filing the suit on 7.10.89 till full payment; and

(7) General damages which deem fit and just to assess and award basing on the H devaluation of our Tanzania shilling pegged to the US Dollar and the resultant inflation rate. In 1989 when PW1 paid the purchase price to the defendant company, the rate was about Shs 110/= to the dollar. Today the current exchange rate is about Shs 302/= to the dollar. If my mathematical calculations serve me right, our shilling has from 1989 to 1992 fallen down to the dollar by about 274%. For I

1995 TLR p14
KISANGA JA

A this reason, and under the circumstance of this case, I award to PW1 30% of the said devaluation and inflation rate annually on the purchase price or principal sum of Shs 4, 2823,420/= from 15.8.89 till full satisfaction.'

B It is against that background that this appeal has been preferred.

Before us the appellant was represented by Mr R C Kesaria and Mr J C D'Souza while the respondent was represented by Mr M Maira and Mr W A L Mirambo. Counsel for the appellant

filed a total of 26 grounds of appeal and at the hearing we also granted them leave to argue another four additional grounds. Essentially the C issue raised in these grounds is that the appellant duly delivered the farm implements to PW1, or to the railways (the carrier) at Dar es Salaam for transmission to PW1, in accordance with the terms of the contract, and that once that was done then property in the goods passed so that the appellant was no D longer responsible for the damage caused to the goods while in transit to Arusha. Counsel for the appellant took the view that this was a contract for the sale of unascertained goods which was governed by the provisions of Rule V of s 20 of the Sale of Goods Ordinance (Cap. 214). He therefore criticised the Trial Judge for E failing to hold that `where there is a contract for the sale of unascertained goods by description and goods of that description, and in a deliverable state are unconditionally appropriated to the contract (as was the case here) the property in the goods thereupon passes to the buyer.'

F We agree with learned counsel that this was a contract for the sale of unascertained or largely unascertained goods by description. This was so because the tractor which formed part of the goods was ascertained only by its chassis and engine numbers. That was not sufficient to ascertain it because it was not known that the body looked like or what colour it was. What is more the G other two implements, namely, the harrow and the chisel were completely unascertained. We also agree that the goods were appropriated to the contract when they were pointed out to PW1 in the appellant's workshop at Pugu Road in Dar es Salaam or at the time of loading them on the wagon at the railway station Dar es Salaam for transmission to Arusha. H However, we do not agree that the appropriation was unconditional. Our view is that the appellant had reserved the right of disposal of the goods, and this made the appropriation conditional thereby preventing the property in the goods from passing to PW1. Section 21(1) of the Sale of Goods Ordinance provides that: I

`Where there is a contract for the sale of specific goods, or where goods are subsequently A appropriated to the contract, the seller may, by the terms of the contract or appropriation, reserve the right of disposal of the goods until certain conditions are fulfilled. In such case notwithstanding the delivery of the goods to a buyer, or to a carrier or other bailee or custodier for the purpose of transmission to the buyer, the property in the goods does not pass to the buyer until the conditions imposed by the seller are fulfilled.' B

It is clear from the evidence that when PW1 arrived in Dar es Salaam the goods were not ready for collection because there was a pre-delivery service to be done on them and a customs clearance certificate to be obtained in respect of them. C DW2 clearly stated that it was the duty of the appellant to obtain the certificate and DW1 demonstrated to PW1 the futility of collecting the goods without such certificate. This is what he said: D

'I told him (PW1) that so long as the customs documents were not ready then it was not possible for him to collect and register the tractor. PW1 knew this very well.'

Consistent with that stand, the appellant must have decided that in order to avoid E further inconvenience of keeping PW1 longer in Dar es Salaam and in order to avert the threat by PW1

to rescind the contract, he (PW1) could return to Arusha and take delivery of the implements there after the appellant had done the needful. In other words the appellant, appreciating its obligation to carry out pre-delivery F service to the implements and, in particular, to obtain a customs clearance certificate without which it was useless for PW1 to take delivery of the implements, appropriated the goods to the contract but reserved its right of disposal thereof pending the doing of the two things. It was necessary to reserve the right of disposal thus in order to enable the appellant to take delivery of the goods at its Arusha branch for the purpose of doing those two things. G

The Trial Judge rightly rejected the appellant's claim that PW1 insisted on, and eventually succeeded in, taking delivery of the implements at Dar es Salaam. For that would be a useless exercise, and according to DW1 he (PW1) knew it. Then H why should PW1 engage in such a useless exercise? Again if he had taken delivery of the implements at Dar es Salaam, what was the point of consigning them to the appellant at Arusha instead of to himself?

It is true that PW1 did a number of things in connection with the I

A dispatch of the goods to Arusha. For instance, he initially looked for a railway wagon on which to load the implements. He paid the transport charges including paying for the escort; he signed the consignment note. His explanation was that he did these things, upon being asked by the appellant, in order to facilitate the whole exercise because he was interested to see that the implements reach Arusha as soon as possible. We can find no ground for saying that the Trial Judge should B have rejected that explanation.

Counsel for the appellant strenuously contended that there was unconditional appropriation of the goods to the contract when the appellant handed over the C implements to the railway authorities for transmission to Arusha. Learned counsel further contended that following such unconditional appropriation, the property in the goods passed to PW1 so that even if it is held that the appellant continued to be in possession of the goods, it did so as a mere bailee. No doubt, this view is based on the provisions of Rule V(2) of s 20 of the Sale of Goods Ordinance which says that: D

'(2) Where in pursuance of the contract the seller delivers the goods to the buyer or to a carrier or other bailee or custodier (whether named by the buyer or not) for the purpose of transmission to the buyer, and does not reserve the right of disposal, he is deemed to have unconditonally appropriated the goods to the contract.' E

But as already demonstrated, this was a case of conditional appropriation of goods to the contract by reason of the appellant reserving the right of disposal. F

This view is reaffirmed by the provisions of s 21(2) of the Sale of Goods Ordinance which provides that:

G '(2) Where goods are shipped, and by the bill of lading the goods are deliverable to the order of the seller or his agent, the seller is prima facie deemed to reserve the right of disposal.'

H Since the appellant consigned the goods from its Dar es Salaam office to its Arusha office, it is prima facie deemed to have reserved the right of disposal. The appellant gave no explanation

to rebut that presumption, and on the evidence we could find none. On the other hand the presumption is confirmed by the appellant's intention to take delivery of and repossess the implements at Arusha in order to do pre-delivery service and obtain the requisite customs clearance certificate in respect of them. Because of such reservation of the right of disposal, therefore, the property in the goods did not I

1995 TLR p17

KISANGA JA

pass, and the appellant remained the owner after appropriating the goods to the A contract.

Indeed the conduct of the appellant after appropriating the goods to the contract was consistent with its ownership of those goods. The evidence shows that PW1 took the consignment note in respect of the implements in question to the appellant's representative at its Dar es Salaam office, whereupon the said B representative in turn instructed him to take it to the appellant's representative at its Arusha office for action and he did so. The Trial Judge accepted that evidence and we could not fault him. The consignment note shown the consignor of the goods to be the appellant's office at Arusha. Neither the appellant's representative at Dar es Salaam office nor at Arusha expressed surprise that the goods were consigned by its office in Dar es Salaam to its office at Arusha. Quite clearly such C conduct is consistent with the view that although the appellant had duly appropriated the goods to the contract, it was still the owner of those goods. In fact, upon the goods arriving at Arusha, the railway authorities there completely D refused to recognize anyone else but the appellant as the owner of the goods.

The acts of the appellant's representative rushing to the scene of the accident at E Hedaru which is so far away without informing PW1 about the accident, the appellant's taking delivery of the goods at Arusha and paying demurrage charges in respect thereof are consistent with the appellant's ownership of the goods. If the appellant was not the owner of the goods why should it take delivery of the goods and pay demurrage charges in the sum of Shs 376,000/=? And why has it (the appellant) not lodged a claim against PW1 for a refund of this sum? F

There is yet another matter to be alluded to in this respect. The Trial Judge rightly accepted the evidence that there was no arrangement between PW1 and Mr Mario Gikas to transport the latter's trailer from Dar es Salaam to Arusha. That goes to G confirm that the whole consignment comprising PW1's implements and Mr Gika's trailer had been sent by the appellant. That is to say the appellant was the owner of the whole consignment, and that is why it (the appellant) accepted the responsibility of repairing at cost Mr Gika's trailer which was damaged in the H accident. Now, if the appellant was the owner in respect of the trailer, how come that it was not the owner in respect of the implements comprised in the very same consignment?

The evidence on record, therefore, amply justifies the finding that upon appropriating the goods to the contract, the appellant re- I

1995 TLR p18

KISANGA JA

A served the right of disposal. That rendered the appropriation only conditional and thereby prevented the property in the goods from passing. The appellant remained the owner of the goods to-date.

We heard lengthy arguments on whether or not there was any binding variation of B the written contract to change the place of delivery from Dar es Salaam to Arusha, and whether or not the goods were in a deliverable state. We were also referred to numerous authorities in that regard. However, those questions are of little or no relevance now once it is held that there has been no transfer of ownership from the appellant, because the claim is that the appellant has failed to deliver the goods, whatever state they be in and whether at Dar es Salaam or at Arusha. C

It was also submitted that after the accident which caused damage to the tractor, PW1 wrongly refused to take delivery of the tractor at Arusha when the damage caused to it was only slight, the evidence being that PW1 was asked to bear the D cost of buying the necessary spares amounting to Shs 300,000/= while the appellant was to bear the labour charges. PW1 denied any such offer having been made to him. But even if the appellant's version is accepted that PW1 refused the E offer and insisted on replacement of the tractor, such refusal in our view cannot be said to be unreasonable. For, there is no legal basis for making PW1 responsible for damage caused to the tractor at a time when that tractor was owned by, and in the possession and care of, someone else.

F Thus on the evidence we are satisfied that the appellant failed to deliver the farm implements to PW1 in accordance with the terms of the contract and therefore the learned Trial Judge was justified to find that the appellant was in breach of the contract.

As regards the award, counsel for the appellant criticised the Trial Judge for giving G the respondent an option to purchase a new tractor of similar type on an option to purchase a new tractor of similar type on an open ended price scale and to charge the price difference to the appellant. The learned judge was also criticised for allowing the respondent to recover the difference between the pre-paid purchase price and the market price obtaining on the day of the accident when H there was no evidence of any such difference. We think that there is merit in the complaint. Accordingly, that part of the award is varied as follows: The appellant is to refund to the first respondent (PW1) Shs 4,483,420/= being the pre-paid purchase price with interest at bank rate from the date of payment of the purchase price till final payment.

Counsel criticised the aware of special damages for loss of use at I

the rate of between Shs 20,000/= and Shs 10,000/= per day without proof thereof. A In support of his claim for special damages PW1 said:

'To-date I have not been supplied with the tractor, harrow and chisel plough. I have sufferred great loss thereby. I used to realize 20,000/= per day from ploughing 20 acres per day at B 1,000/= per acre at the material time. I used to transport sand, stones, sugar cane. This is on hire basis. Each trip cost Shs 7,000/=. At the material time I had contracted to plough 200 acres

for Mr Patel who had paid me Shs 400,000/= in advance. Due to lack of tractor I could not plough those acres.' C

That evidence was not controverted and therefore the learned Trial Judge rightly took it into account when assessing the award. However, we could find no evidence to support his using different rates per day in computing the damages payable for loss of use depending on the different seasons of the year. With that in D mind, we think that a uniform rate of reckoning the damages would be appropriate.

Accordingly we vary this part of the award to the extent of allowing the respondent (PW1) to recover damages for loss of the use at the rate of Shs 10,000/= per day E plus interest at court rate from the day of non-delivery i.e. October, 1989 till the date of judgment.

Counsel objected to the award of Shs 400,000/= on the grounds that PW1 had F entered into the ploughing contract prematurely, that he had other tractors and ploughs and that in any event the award was a duplication in the light of the award for loss of use already given.

We find merit in the objection on this head especially on the ground that this was a duplication. The award of Shs 400,000/= damages was in respect of loss sustained for the period during which PW1 would have executed the ploughing contract. That period is not ascertainable; it might have been ten or fifteen days, for instance. But such period is included in the award already made for loss of use and calculated at Shs 10,000/= per day from the day of non-delivery to the day of G judgment. Such award is clearly a duplication which ought not to be allowed. We would accordingly set aside the award of Shs 400,000/=. H

Once the awards which we have upheld were made, we think that the award for general damages, taking into account devaluation and inflation, are no longer justified. The award under that head is accordingly set aside. I

1995 TLR p20

KISANGA JA

A We now come to the question of costs. As stated earlier on in this judgment, both sides were represented by two advocates. At the conclusion of the hearing of the appeal each side asked for a certificate of costs for two counsel. The B application has merit. The case was long and obviously complicated. It required a great deal of effort and patience to analyse the issues involved and to look up the relevant provisions of the law. Accordingly, for the reasons set out herein before, the appeal is substantially dismissed, with a certificate of costs for two counsel. C

1995 TLR p20

D

[zRPz]GEORGE SHAMBWE v TANZANIA ITALIAN PETROLEUM CO. LTD. 1995 TLR 20 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Chua J

CIVIL CASE NO. 74 OF 1992 E

July 21, 1994
Flynote
F Civil Practice and Procedure - Res judicata - Essential ingredients of the plea.
-Headnote
The plaintiff filed a suit against the defendants claiming Shs 6,122,402/= being arrears of salary and fringe benefits plus Shs 20,000,000/= being general damages. The defendants raised a preliminary objection to the claim on the basis that the matter was res judicata because it was directly and substantially in issue in RM Civ. Case No.114 of 1988. G
Held:

(i) For res judicata to apply not only must it be shown that the matter directly and substantially in issue in the contemplated suit is the same as that involved in a former suit between the same parties but also it must be shown that the matter was finally heard and determined by a competent court; H

(ii) Although it was argued that in the lower court the plaintiff had tried to obtain the sum of Shs 6,122,402/= in the course of executing the decree of the court there was no evidence to show that the issue as to how that sum was arrived at was heard and finally determined before the decree of the Court was drawn up; I

1995 TLR p21
CHUA J

(iii) Res judicata is not applicable in this case. A

Case Infomation
Order accordingly.
No case referred to.
Songalawe for the plaintiff.
[zJDz]Judgment
Chua, J.: B
A preliminary objection has been raised to the claim filed in this court on the basis that the matter is res judicata. It was contended by counsel for the defendants that the matter directly and substantially in issue in the present suit was directly and substantially in issue to RM Civil Case No 114 of 1988. C
From copies of the ex-parte judgment and decree passed in RM Civil Case No 114 of 1988 it is clear that judgment was entered in the following terms 'I grant all the prayers prayed in the plaint by the plaintiff'. A copy of the decree reads: D

'The applicant plaintiff having filed this suit praying for

(a) A declaration that he is still an employee of the defendant,

(b) The plaintiff should continue to occupy the house at Kanazi Street Kinondoni. E

(c) Costs

(d) Any other relief.

Having heard the plaintiff ex-parte and now this suit coming for final disposal before me it is hereby ordered and decreed that I am satisfied that the plaintiff has proved his case as

required by law. In the circumstances I grant all the prayers prayed in the plaint by the plaintiff'. F

In the present suit the plaintiff is claiming Shs 6,122,402/= being arrears of salary and fringe benefits plus Shs 20,000,000/= being general damages. The decision of G the RM's Court in RM Civil Case No 114 of 1988 does not decide this claim.

It was submitted by counsel for the defendant that paras 3, 4 and 5 of the plaint contravene Order VII rule 2 of the CPC and should therefore be struck off. It has not, however, been shown how Order VII rule 2 has been contravened for the rule prescribes: H

Where the plaintiff seeks the recovery of money, the plaint shall state the precise amount claimed:

Provided that where the plaintiff sues for mesne profits or for an amount which will be found due to him on taking unsettled I

A accounts between him and the defendant, the plaint shall state approximately the amount sued for.

In the present case the plaintiff has stated the amounts he is claiming and how he B arrived at those figures is a matter of evidence. Also by providing further and better particulars the defendant will be in a position to know exactly what is being claimed in terms of salaries and various types of fringe benefits.

Finally it was submitted that the suit was barred by limitation. Mr Somgalawe for the plaintiff countered this argument by asserting that this is a suit based on C judgment and therefore under s 6(c) of the Law of Limitation Act the right of action accrued on the date the judgment was delivered which in this case was 23 May 1989. Under the 1st Schedule, item 16 of the Law of Limitation Act the period allowed for such suits is twelve years. I agree with the observations of Mr Somgalawe regarding limitation.

D I should reiterate that for res judicata to apply not only must it be shown that the matter directly and substantially in issue in the contemplated suit is the same as that involved in a former suit between the same parties, but it must also be shown that the matter was finally heard and determined by a competent court. In this case, though it was argued that in the lower court the plaintiff had tried to obtain E the sum of Shs 6,122,402/= in the course of executing the decree of the court, there was no evidence to show that the issue as to how that sum was arrived at F was heard and finally determined before the decree of the court was drawn up. In my view therefore res judicata is not applicable in this case and for reasons already spelled out the other points raised are rejected. The suit should proceed for trial but before the next hearing date the plaintiff must amend the plaint so that he indicates clearly how much he is claiming under the different categories of employment rights and fringe benefits. G

A

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v FONJA MATHAYO 1995 TLR 23 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA B

CRIMINAL APPEAL NO. 126 OF 1993
November 28, 1994
(From the decision of the High Court of Tanzania at Arusha, Mroso, J.) C
Flynote
Criminal Practice and Procedure - Adjournment - Adjournments in trials before subordinate courts - Trial court granting adjournment beyond aggregate of 60 days - Whether proceedings are vitiated - Sections 225(4) and (5) of the Criminal Procedure Act, 1985. D
-Headnote
The respondent was convicted by the District Court for shop breaking and stealing contrary to s 296(1) of the Penal Code. On appeal, the High Court declared his trial a nullity because the trial court had granted adjournments beyond an aggregate of 60 days contrary to s 225(4) and (5) of the Criminal Procedure Act, 1985. The Director of Public Prosecutions appealed against that decision of the High Court.
Held: Breach of the provisions of s 225(4) and (5) of the Criminal Procedure Act, 1985, does not necessarily vitiate the trial unless it is shown that the accused person has been prejudiced in his defence or that the adjournments did affect the substance of the conduct of the trial.
Appeal allowed; case remitted to the High Court to consider the appeal on merit.
Case Infomation
Case referred to:
(1) John Joseph Onenge and Another v. Republic [1993] T.L.R.
Mono, for the republic
[zJDz]Judgment
Kisanga, J.A., delivered the following considered judgment of the court:
The respondent was convicted by the District Court for shop breaking and stealing contrary to s 296(1) of the Penal Code. He was sentenced to three years' imprisonment, with an order to compensate the victim of the offence in the sum of Shs 691,600/= being the value of the property stolen from him. The respondent appealed to the High Court which declared his trial a nullity by reason of a
1995 TLR p24
KISANGA JA
A breach of the mandatory provisions of s 225(4) and (5) of the Criminal Procedure Act. It is against that decision that the Director of Public Prosecutions is now appealing to this Court.
In this appeal the Republic was represented by Mr Mono, learned Principal State Attorney, but the respondent was absent and unrepresented. When the appeal first B came on for hearing on 21 October 1993 the Court was informed by the Registry that the summons to the respondent was returned unserved. Upon Application by the Republic, the hearing was adjourned to a later date in the Session to allow for the prosecution to make another attempt to serve the C

respondent. On 1 November 1993 the Court was informed that the summons to the respondent was returned unserved with the endorsement on it to the effect that the respondent escaped upon seeing the process server. Whereupon the Court directed process by substituted service through publication of the notice of hearing D in the Uhuru newspaper. On 17 November 1994 during the current Session, the Court was informed by the Registry that substituted service was duly effected through publication of the notice of hearing in the Uhuru newspaper on 1 and 2 November, 1994. The Court took this to constitute sufficient notice and proceeded to hear the appeal. E

Mr Mono filed and argued only one ground of appeal, the essence of which was that the learned High Court judge erred in holding that a breach of s 225(4) and (5) of the Criminal Procedure Act renders the trial a nullity. For this view he relied on the decision of this Court in the case of John Joseph Onenge and Another v Republic (1) involving similar facts. F

In the present case the learned High Court judge found that the trial court had granted adjournments after the expiry of the aggregate of 60 days periods in terms of the time frame stipulated under s 225 of the Criminal Procedure Act without the G requisite certificates by the specified officers pursuant to paras (a), (b) and (c) of ss (4) of that section. In the case of John Joseph Onenge and Another cited above, we held that a breach of s 225(1) and (4) which did not effect the substance of the trial does not render the trial a nullity. That principle equally H applies here. For, as in that case, it has not been suggested that the granting of adjournments in the present case prejudiced the respondent in his defence or in any way affected the conduct of his trial.

Perhaps it is pertinent to note here that during the adjournments the respondent was out on bail, unlike in the case of John Joseph Onenge and Another where the appellants remained in remand I

custody. So the principle here applies with even greater force, but the main point A being emphasized is that the adjournments did not in any way affect the conduct of the trial, the process by which the issue of the respondent's guilt or innocence was determined.

At the same time we desire to make it quite clear that we do not in any way view lightly breaches of the provisions of s 225 of the Criminal Procedure Act which have been designed to protect and safeguard the liberty of the accused person in a criminal case. B

Section 225 of the Act is an important provision for the safeguard of the basic rights of an individual accused of a criminal offence. It is for that reason that we C renew our call upon the magistracy to be more vigilant in the application of that section in order to ensure that accused persons really enjoy the protection which the provisions of that section seek to accord to them.

For the foregoing reasons we allow the appeal by the Republic and set aside the D judgment of the High Court. In fairness to the High Court, however, we have to add that our decision in the case of John Joseph Onenge and Another v Republic above cited was handed down only after the judgment of the High Court in this case was given. So that the learned High Court judge cannot have been aware of that judgment before he delivered his own. We have every reason to

think that had he seen that judgment before he would have decided the case before him differently. E

The learned High Court Judge, having declared the proceedings of the District Court a nullity, rightly refrained from considering the merits of the appeal before him, and instead ordered a trial denovo. However, in the light of the decision we F have taken of setting aside the judgment of the High Court, we remit the matter to that Court with a direction that the Court now proceeds to consider the appeal on the merits. G

1995 TLR p26

A

[zRPz]RAMADHANI AMIRI v YUSUFU RAJABU 1995 TLR 26 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Maina J

B (PC) CIVIL APPEAL NO.49 OF 1991

September 2, 1994

Flynote

Civil Practice and Procedure - Summons to appear - Summons or Notice to appear returned unserved - Effect thereof C

Civil Practice and Procedure - Failure of party to appear for hearing - Summons returned unserved but appellant informed of hearing date orally by process server - Whether acceptable

-Headnote

D The appellant's first appeal to the District Court was dismissed due to the appellant's non-appearance. When the District Court called the appeal for hearing, the respondent informed the court that the process server had orally informed the appellant of the hearing. The appellant applied to the District Court to set aside the order of dismissal on the ground that he was not served with a hearing notice. The District Court dismissed this application, and he appealed to the High Court of Tanzania. E

Held: (i) If a summons or notice of a hearing date is returned unserved, that is evidence that the party concerned was not informed of the hearing date;

(ii) It is contrary to the law for the process server or anyone else to orally notify parties of a hearing date.

Case Infomation

F Appeal allowed with costs

No case referred to:

[zJDz]Judgment

G Maina, J:

This is an appeal by Ramadhani Amiri against the decision of the Kinondoni District Court which dismissed his application to set aside the dismissal of his appeal to that court.

H The respondent Yusufu Rajabu had successfully sued the appellant in the primary court at Manzese for a house. It was alleged that the appellant had pledged his house for a loan of Shs 50,000/= and when he failed to repay the money, within the period agreed, the respondent sued for the house, and he was successful. The appellant appealed to the district court. The hearing was fixed for 14 February 1991. The appellant was not served with the notice of hearing because he had travelled to Rufiji. The endorsement on I

1995 TLR p27

MAINA J

the notice speaks for itself. It states that the appellant was bereaved, as his A mother had died, and he had travelled to Rufiji.

When the appeal was called for hearing on 14 February 1991 the respondent informed the court that the appellant was notified verbally on 5 February 1991 by a process server of the hearing date. The hearing of the appeal was adjourned to 15 B February 1991 when the court process server said that he had verbally informed the appellant of the hearing date. The district magistrate dismissed the appeal for non-appearance.

The appellant later applied to set aside the dismissal of the appeal. His reasons were that he was not served with the notice of hearing for he was away in Rufiji, until 16 February 1991 when he returned to Dar es Salaam. The district magistrate disbelieved him and dismissed the application. C

The procedure adapted by the district magistrate is strange. It is strange because the notice of hearing of the appeal was returned to the court unserved, and yet he D accepted oral evidence by the process server to contradict the endorsement on the notice. If the appellant had returned from Rufiji before the hearing date and the process server saw him, then a fresh notice would have been issued and served on the appellant. It has never been procedure for a process server or anyone else E to notify parties verbally of the hearing date. If the courts were to accept evidence that a party has been notified verbally of a hearing date, that will create chaos and miscarriage of justice in the whole judicial process. The procedure laid down in the law must be followed. If a summons or notice is returned unserved, that is evidence that the party concerned was not informed of the hearing date. F

Since the notice was returned to the court unserved, that was clear evidence that the appellant was not aware of the hearing date. The district court erred in law in accepting oral evidence by the process server that the appellant was aware of the hearing date. The dismissal of the appeal before the district court cannot be G allowed to stand. The appellant gave sufficient cause for his no-appearance when the appeal was called for hearing - that he was not aware of the hearing date.

The order dismissing the appeal before the District Court is set aside. The appeal is remitted to the District Court for hearing according to law. H

1995 TLR p28

A

[zRPz]KASONGI YABISA v THE REPUBLIC 1995 TLR 28 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Kisanga JJA, Omar JJA and Mnzavas JJA

B CRIMINAL APPEAL NO.160 OF 1993
September 20, 1994
(From the conviction and sentence of the High Court of Tanzania at Mwanza, Masanche J.)
Flynote
C Criminal law - Murder - Witchcraft - As a defence to murder - when witchcraft can constitute a defence to a charge of murder
-Headnote
D The appellant was charged with and convicted of the murder of his sister. The appellant's defence, which was rejected by the trial court, was that he killed the deceased in the honest belief that she was responsible, by reason of witchcraft, for the death of his daughter. There was no evidence of sudden shock which might have deprived the appellant of his self control. The Court of Appeal considered the defence of witchcraft.
E Held:
(i) Although the appellant killed his sister, the deceased, in the honest belief that she was responsible, by reason of witchcraft, for the death of his daughter, since there was no sudden shock which might have deprived the appellant of his self-control the killing was murder;
(ii) To constitute a defence in a charge of murder the belief in witchcraft must be founded on some physical and not metaphysical act. F
Case Infomation
Appeal dismissed
Case referred to:
G 1. R.v. Akope s/o Karuon and another [1947] 14 EACA 131
Muhuba, for the appellant
Magoma, for the respondent.
[zJDz]Judgment
H Mnzavas, J.A., delivered the following considered judgment of the court:
The appellant Kasongi Yabisa was sentenced to death by the High Court sitting in Mwanza (Masanche, J) consequent upon his conviction for the murder of one, Mbalu d/o Yabisa on or about 19 October 1984 at Malembe Village, within the district of Kwimba, in Mwanza region. I
1995 TLR p29
MNZAVAS JA
Mr Muhula, learned advocate, appeared for the appellant while Mr Magoma, A learned Senior State Attorney, appeared for the Republic.
Mr Muhula, learned Counsel for the appellant told the Court:

'I have thoroughly read the record and I have come to the conclusion that I have very little B ground to argue the appeal in favour of the appellant. I have informed my client accordingly.'

In reply Mr Magoma, learned Senior State Attorney said: C

'The Republic supports the conviction. It is my view that there was ample evidence in support of the conviction.'

In this case the following facts were not seriously in dispute:

The appellant and the deceased were brother and sister and they lived in the same homestead. The appellant was married and had children. The deceased was not and was childless. D

About a month before the death of the deceased the appellant and his family vacated the house in which they were living with the deceased and built a separate house some distance away from deceased homestead. E

The deceased was left to live in the former homestead alone. A week or so after the appellant had left to live in his new house villagers passing by the house of the deceased started smelling a foul odor emanating from the deceased's pit-latrine. As the deceased was nowhere to be seen in the village news reached authorities F and the local 'Katibu Kata', (PW3) went to appellant's homestead and interrogated him as to the whereabouts of his sister, the deceased. Initially the appellant told the 'Katibu Kata' that the deceased had left the village to Geita to look for her sheep. On further interrogation the appellant confessed to the 'Katibu Kata' G that he killed the deceased because he honestly believed that she was a witch and that she was responsible, by reason of witchcraft, for the death of one of his children. The appellant then led the 'Katibu Kata' and other villagers to deceased's pit-latrine where he had dumped deceased's body. The matter was reported to the police and a dead body was removed from the pit and identified as that of the deceased. H

There was also appellant's confession to a justice of the peace PW1 - exhibit P3, in which the appellant gave a detailed statement as to why he killed the deceased. He says, inter alia: I

1995 TLR p30

MNZAVAS JA

A 'Marehemu namfahamu, Mbalu Yabisa, alikuwa dada yangu. - Mnamo mwaka 1982 - mtoto wargu aitwae Luja d/o Kasongi alianguka ndani ya lambo akafa. Nilienda kwa waganga wa kienyeji baada ya mazishi. Waganga wa kienyeji walinieleza kwamba binti yangu Luja B alisukumizwa kwenye lambo na akafa. Mnamo mwaka 1983 - mtoto wangu wa kiume aitwae John Kasoni nilikuta analia naye akanieleza kuwa ametishiwa na shangazi yake (marehemu). Wakati huo alikuwa amechomwa na mwiba wa Mkongo (goti) rilimpeleka hospital - mwisho akapona lakini shangazi yake hakuja kumtazama. Baada ya kuona kuwa anatake kumaliza watoto wangu nikajua kuwa siku moja ataniua mimi. - Hivye niliona kuwa C nihame. Baada ya kuhama ndipo niliamua nimuue mimi mwenyewe. Mnamo tarehe 15 October 1984 saa 8 usiku niliondoka kwangu rilipofika kwa marehemu nilifungua mlango, nilimkuta amelala rilimvuluta toka kitandani nikamsukuma akajipiga kwenye kibambaza na kuanquka chini ndipo nikaanza kumniga kooni kwa mikono mpaka akafa. Baada ya kuona D kuwa amekufa nilimvuta

nikampeleka ndani ya choo; baada ya kuutumbukiza ndani ya choo nilichukua jembe nikaufunika kwa udongo - nilipomaliza nilienda nyumbani kwangu.'

E Doctor's post-mortem report - exhibit P1 was to the effect that the deceased died of asphyxia. This tallies with appellant's confession that he strangled the deceased to death.

There can be no doubt in this case that the appellant killed his sister, the deceased, in the honest belief that she was responsible, by reason of witchcraft, for the death of his daughter, Luja Kasongi. However, as there was no sudden shock which might have deprived the appellant of his self-control the killing was murder. F

'To constitute a defence in a charge of murder the belief in witchcraft must be founded on some physical and not metaphysical act' - See the decision in R v Akope s/o Karuon and Another (1). G

On the evidence we are satisfied that the learned Trial Judge was right in convicting the appellant of the offence of murder as charged. The sentence of death is mandatory.

In the event we dismiss the appeal in its entirety. H

1995 TLR p31

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[zRPz]REV. CHRISTOPHER MTIKILA v ATTORNEY GENERAL 1995 TLR 31 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

CIVIL CASE NO. 5 OF 1993 B

October 24, 1994

Flynote

Constitutional Law - Supremacy of Parliament - Power of Parliament to amend the Constitution - Whether limitless C

Constitutional Law - Fundamental Rights enshrined in the Constitution - Whether Parliament can amend constitutional Provisions safeguarding fundamental rights

Litigation - Locus standi - Sufficient personal interest in the subject of litigation - Extent of interest in private law and public law litigation distinguished D

Locus Standi - Constitutional Rights - Locus Standi in litigation for basic constitutional rights - No particular right of Petitioner is infringed - Whether Petitioner has locus standi - Article 30(3) of the Constitution. E

Litigation - Public Interest Litigation - Whether sufficient interest is necessary in public interest litigation - Article 26(2) of the Constitution

Civil Practice and Procedure - Stay of proceedings - Suit brought on an issue already F pending before another court - Whether subsequent suit may proceed - Section 8 of the Civil Procedure Code, 1966.

Statutory interpretation - Interpretation of Constitutional provisions - Constitutional Provision being in conflict with another provision of the Constitution - Use of the harmonisation principle of statutory interpretation G

Constitution - Constitution of the United Republic of Tanzania - Union Matters under the Constitution - Appointment of persons from Zanzibar to offices of non-union matters on the Mainland - Whether Constitutional

-Headnote

The petitioner was a human rights campaigner and political activist. In his petition he invited the High Court to consider whether certain amendments to the Constitution were validly made as they appear to infringe the right to participation in national public affairs and freedom of association, both of which are guaranteed by the Constitution. The petitioner also invited the Court to declare a number of statutory provi- H

A sions unconstitutional for infringing rights and freedoms guaranteed under the Constitution. These were some provisions of the Political Parties Act 1992 which, the petitioner claimed, infringed freedom of association; some provisions of the election laws which made it impossible for independent candidates to contest in B elections; certain provisions of the Newspapers Act 1976 which he claimed were arbitrary and liable to abuse, and an infringement to freedom of expression; and certain provisions of the Police Force Ordinance, Cap 322, and the Political Parties Act 1992 which, he claimed, infringed the constitutional right to peaceful assembly and public expression by requiring a permit to be obtained before one C can hold a public meeting or a rally. The petitioner also sought a declaration whether or not the appointment of people from Zanzibar to offices in Mainland Tanzania dealing with non-union matters was constitutional. Besides opposing the petition on substantive grounds, preliminary objections were raised for the Respondent regarding whether the petitioner had locus standi, whether he had a cause of action, and whether the issues he raised were justiciable.

D Held:

(i) The orthodox common law position regarding locus standi no longer holds good in the context of constitutional litigation in that the notion of sufficient personal interest over and above the interest of the general public has more to do with private law rather than public law; in matters of public interest litigation the Court will not deny standing to a genuine and bona fide litigant even where he has no personal interest in the matter; E

(ii) In the circumstances of Tanzania, if a public spirited individual springs up in search of the Court's intervention against legislation or actions that pervert the Constitution, the Court, as guardian and trustee of the Constitution, must grant him standing; F

(iii) The principles of public interest litigation are expressed in the Constitution of Tanzania by vesting in every person the capacity of an individual by virtue of articles 12 to 24 of the Constitution, and the capacity of a member of the community by virtue of articles 25 to 28 of the Constitution, thereby equipping the individual with double standing to sue; G

(iv) The petitioner in this case has locus standi by virtue of article 30(3) of the Constitution which entitles a person who alleges that a basic right is being or is likely to be

contravened in relation to him to institute proceedings for relief in the High Court, as well as by virtue of article 26(2) of the Constitution which entitles every person to institute H proceedings for the protection of the Constitution and of legality;

(v) Article 26(2) of the Constitution is an independent and additional source of standing according to which personal interest is not necessary in order to institute proceedings; the article is tailored for the community and it enacts into the Constitution of Tanzania the doctrine of public interest litigation; I

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(vi) In this petition the dispute is over the validity of various laws and that A suffices to constitute a cause of action; it is not always necessary for powers under those laws to be exercised first so as to give rise to a cause of action;

(vii) Fundamental rights are not gifts from the state but they inhere in a person by virtue of birth, and they are prior to the state and the law; the enactment of those rights in the Constitution is mere evidence of their B recognition and the intention that they should be enforceable in a court of law, and an intention that those rights should not be arbitrarily restricted by the state;

(viii) Parliament is given very wide powers to amend constitutional provisions, including those providing for basic human rights, but those powers of Parliament can only be exercised subject to the limits imposed by articles 30(2) and 31 of the Constitution; what is beyond the powers of Parliament C to amend is only the ethic of human rights but not the letter by which those rights are expressed;

(ix) The constitutional amendments which brought article 20(2) and (3) of the D Constitution laying conditions for registration of political parties, and those in article 39 of the Constitution relating to qualifications to contest in presidential, parliamentary and local government elections, were all validly enacted; the amendments do not abrogate, beyond the limits set by article 30(2) of the Constitution, freedom of association and the right to participate in national public affairs which are guaranteed under the Constitution; E

(x) As the issue of the constitutionality of certain provisions of the Political Parties Act 1992 is also substantially an issue in an appeal already pending before the Court of Appeal, in terms of s 8 of the Civil Procedure Code 1966, decision on that issue is stayed until the outcome of the said appeal; F

(xi) The constitutionality of a statutory provision is not found in what could happen in its operation but in what it actually provides for; the mere possibility of a statutory provision being abused in actual operation will not make it invalid;

(xii) Section 40 of the Police Force Ordinance, Cap 322, and s 11(1) of the G Political Parties Act 1992, hi-jack the right to peaceful assembly and procession guaranteed under the constitution and place it under the personal disposition and absolute discretion of the District Commissioner without adequate or any safeguard against arbitrary exercise of that discretion; they infringe the right to freedom of peaceful assembly and procession, and are therefore unconstitutional; H

(xiii) Section 41 of the Police Force Ordinance does not take away the right to hold assemblies or processions but only empowers the Police and the magistracy to step in for preserving peace and order whenever the holding or continuance of an assembly or procession is likely to cause a breach of the peace; it seeks to ensure public safety and public order, and is therefore a valid provision saved by article 30(2)(b) of the Constitution; I

1995 TLR p34

A (xiv) Sections 42 and 43 of the Police Force Ordinance, which define an unlawful assembly and punish it, are constituitionally valid provisions which seek to ensure public safety and order, and to ensure that the rights and freedoms of others, and the public interest, are not prejudiced by the misuse of an individual rights and freedom;

B (xv) As article 21(1) of the Constituion entitles every citizen to participate in the government of the country, either directly or through freely elected representatives, it is illogical for that Constitiution to provide, as it does in articles 20(4) and 39, 67 and 77 as amended, that no person shall be compelled to belong to a political party and in the same breath to provide that no person shall run for office except through a political party; C

(xvi) The right of every citizen to participate in government under article 21(1) of the Constitution is to be exercised according to a procedure set by or under a law; while participation through a political party is a procedure, the requirement that participation shall be through a political party only is not a procedural matter but a substantive condition taking away the right to participate for citizens who do not belong to political parties; D

(xvii) In interpreting the Constituion when a constitutional provision enacting a fundamental right appears to conflict with another constitutional provision, the Court is enjoined to incline to the realisation of the fundamental rights and may disregard the other provision if its application would result in E injustice; it is the fundamental rights, and not the restrictions on them which are fundamental, and it is the fundamental rights which the Court is enjoined to guard jealously, not the restrictions. F

(xviiI) The amendments made in articles 39, 67 and 77 of the Constituion, restricting the right to contest in elections to political party candidates only, are capable of being abused to confine the right of governing to a few and to render illusory the emergence of a truly democratic society; not withstanding those restrictions, it shall be lawful for private candidates to contest elections along with political party candidates; G

(ix) Breach of the Constitution is such a grave and serious matter that cannot be established by mere inference but by proof beyond reasonable doubt; in this case it has not been proved that the appointment of persons from Zanzibar to offices in non-union departments in Tanzania Mainland is in breach of the Constitution of the United Republic. H

Case Infomation

Orders accordingly

Cases referred to:

(1) Thomas and Others v. Olufoseye [1986] L.R.C. (Const) 639 I

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(2) Guriet v. Union of Post Office Workers [1978] AC 435 A

(3) IRC v. National Federation of Self-Employed and Small Businesses Ltd [1981] 2 All ER 93
(4) R v. Metropolitan Police Commissioner, ex parte Blackburn [1968] 2 QB 118
(5) Blackburn v. Attorney General [1971] 2 All ER 1380
(6) Thorson v. Attorney General of Canada [1975] 1 SCR 138 B
(7) Nova Scotia Board of Censors v. McNeil [1976] 2 SRC 265
(8) Minister of Justice v. Borowski [1981] 2 SCR 375
(9) Olawayin v. Attorney General of Northern Nigeria [1961] All NLR 269.
(10) Adesanya v. President of Nigeria & Another [1981] 1 All NLR 1 C
(11) Chief Isagba v, Alege [1981] 2 NCLR 424
(12) Attorney General of Bendel State v. Attorney General of Nigeria, [1982] 3 NCLRI 88
(13) Adediran v. Interland Transport Ltd [1991] 9 NWLR 155
(14) Benazir Bhutto v. Federation of Pakistan, PLD 1988 SC 46
(15) Director of Public Prosecutions v. Daudi Pete [1993] TLR 22 D
(16) Peoples Union for Democratic Rights v. Minister of Home Affairs, AIR 1985 Delhi 268
(17) Prahalad Jena v. State, AIR 1950 Orissa 157
(18) Muhammad Nawaz Sharif v. President of Pakistan, PLD 1993 DC 473
(19) Golaknath v. State of Punjab [1967] 2 SCR 762
(20) Kesavananda v. State of Kerala [1973] Supp. SCR 1 E
(21) Raj Spinning Mills v. A.G. King Ltd [1954] A. Punj.113
(22) Hariram v. Hazi Mohamed [1954] Allahabad 141
(23) Javda Karson v. Harman Singh Bhogal [1953] 20 EACA 74
(24) Jinnat Bibi v. Howeah Jute Mills Co. Ltd., AIR 1932 Cal.751
(25) Collector of Customs (Madras) v. N.S. Chetty, AIR 1962 S.C. 316 F
(26) Kukutia Ole Pumbun v. Attorney General [1993] TLR 159 (CA)
(27) Sanjeev Coke Manufacturing Co. v. Bharat Coking Coal Ltd, AIR 1983 SC 239
(28) C.R. Ramson v. Llyed Barker and the Attorney General [1983] 9 CLB 1211 G
(29) Attorney General of Alberta v. Attorney General of Canada [1947] AC 503
(30) C. Mtikila and Others v. Republic, High Court at Dodoma, Criminal Appeal No.90 of 1992 (unreported)
(31) Wahid Munwar Khan v. State, AIR 1956 Hyd. 22
(32) Minister of Home Affairs v. Hickke and Others [1985] LRC (Const) 755 H
(33) Attorney General v. W.K. Butambala [1993] TLR 46 (CA)
(34) Attorney General of Gambia v. Jobe [1985] LRC (const)556
(35) British Coal Corporation v. The King [1935] AC 500
(36) James v. Australia (Commonwealth) and New South Wales (State) [1936] AC 578
(37) Sturat v. Crowninshield [1819] 4 Law Ed. 529 I

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LUGAKINGIRA J

A (38) Haji v. Nungu and Another [1987] LRC (Const) 224.

D. Mbezi and R. Rweyongeza, for the petitioner

K.M. Mussa, for the respondent

[zJDz]Judgment

B Lugakingira, J.:

This was an unusual petition. In its content and demands it constitutes several petitions in one which range from challenges to the validity of diverse laws to the protection of the Constitution and legality. The petitioner, the Rev Christopher Mtikila, is a human rights campainer-cum-political activist and was represented by C learned counsel Mr Dominic Mbezi who was assisted by Mr Richard Rweyongeza. The respondent Attorney General was represented by Mr Kipenka Msemembo Mussa, a Senior State Attorney. I wish to commend them all for the industry and brilliance that went into the preparation and presentation of arguments. D

The petition originally raised very diverse issues, many of them rather political in flavour and substance, and this prompted Mr Mussa to raise a litany of preliminary objections which the Court resolved in the early stages of the proceeding. The E objections were grounded in questions of the petitioner's locus standi cause of action and justiciability of some of the issues. At the end of the day a number of matters were struck out and issues were then framed for the survivors. In view of the character of the petition which had to be amended several times it is better to paraphrase these issues rather than merely list them. F

The first issue is a general one and is tied up with the second and fifth issues. It seeks to establish generally whether the fundamental rights guaranteed in Part III, Chapter One of the Constitution of the United Republic, 1977 are immutable. The G inquiry is prompted by a set of amendments to the Constitution vide the Eighth Constitutional Amendment Act, 1992 (No 4). The Act amends arts 39, 67 and 77 in a manner which appears to infringe the right of participation in national public affairs which is guaranteed by art 21(1); it also amends art 20 in a manner which H appears to infringe the freedom of association which is guaranteed in sub-art (1) thereof. To put it differently, the problem posed in the first issue is whether the amendments to the Constitution were validly made and, if not, whether they can be declared void pursuant to the provisions of art 64(5).

The second issue turns on the provisions of ss 8, 9, 10 and 15 of the Political Parties Act, 1992 (No 5) which was enacted pursuant to I

the amendment to art 20. These provisions are alleged to inhibit the formation of A political parties and therefore to infringe the freedom of association. I am called upon to declare them unconstitutional and void. The fifth issue arises from the amendment to arts 39, 67 and 77 as well as s 39 of the Local Authorities (Elections) Act, 1979. These amendments renders it impossible for independent candidates to contest presidential, parliamentary or local council elections. I am again called upon to remedy the situation. B

In the third issue the petition takes on ss 5(2), 13, 25 and 37--47 of the Newspapers Act, 1976 (No 3). Section 5(2) empowers the Minister responsible for matters relating to newspapers to exclude any newspaper from the operation of C any of the provisions relating to the registration of newspapers. Section 13 empowers the Minister to require any publisher of a newspaper to execute and register a bond in the office of the Registrar of Newspapers. Section 25

empowers D the Minister to order cessation of publication of any newspaper. Sections 37 - 47 are concerned with defamation and the punishment for libel. Finally, the petition takes on para 12(1) of the Government Notice No 166 of 1977 which empowers the Registrar to refuse registration of a newspaper. It is contended that all these provisions are arbitrary and liable to abuse and constitute as infringement to the freedom of expression which is guaranteed under art 18(1). E

The fourth issue turns on the freedom of peaceful assembly and public expression and questions the constitutionality of ss 40, 41, 42 and 43 of the Police Force Ordinance, Cap. 322 as well as s 11(1) and (2) of the Political Parties Act. These F provisions make it necessary for permits to be obtained in order to hold meetings or organise processions and also provide for police duties in relation thereto. In the sixth and final issue a declaration is sought on the constitutionality of the appointment of Zanzibaris to non-Union posts on the Mainland. G

In my ruling in the preliminary objections I reserved for consideration at this stage the questions of local standi, cause of action and justiciability and I will proceed to do so before considering the matters set out above.

Arguing the question of locus standi, no doubt with a mind to the common law H orthodox position, Mr Mussa submitted that the petitioner had to show a sufficient interest in the outcome. He considered this to be implied in art 30(3) of the Constitution. In his view the petitioner had to demonstrate a greater personal interest than that of the general public, and cited the Nigerian case of Thomas & Ors v Olufoseye (1) in support of his argument. I

A In that case it was held by the Court of Appeal that under s 6(6)(b) of the 1979 Nigerian Constitution it was necessary for the appellants to establish a sufficient interest in maintaining the action and this should be a personal interest over and above that of the general public. Adomola, JCA said at p 650:

B 'It is also the law as laid down in the (Adesanya) case that, to entitle a person to invoke judicial power, he must show that either his personal interest will immediately be or has been adversely affected by the action or that he has sustained or is in immediate danger of sustaining an injury to himself and which interest or injury is over and above that of the general public.' C

Basing on this, Mr Mussa went on to assert that the crucial factor in the petition was the petitioner himself and not the contents of the petition. Furthermore, he contended that art 26(2) of the Constitution did not in itself confer locus standi and appeared to read the provision as if it were not independent in itself. D

In response Mr Mbezi argued that standing was certainly conferred on the petitioner by art 26(2) and that personal interest (or injury) did not have to be disclosed in that context. He maintained that the alleged illegality of the laws was E sufficient to justify the petition under that provision. Mr Mbezi further stated that the petitioner acquired locus standi under art 30(3) as well and referred to the dispersal of his meeting under the provisions of the Police Force Ordinance, the refusal to register his party under the provisions of the Political Parties Act and the F banning of Michapo and Cheka newspapers (his alleged mouthpieces) as sufficiently

demonstrating the petitioner's interest within the contemplation of art 30(3). Mr Mbezi further argued that in view of the provisions of art 64(5) the Court could be moved into action by any petitioner.

G I have given due consideration to the contending arguments and feel called upon to deal with the subject at some length. The status of a litigant in administrative law is a crucial factor and it has assumed an added dimension in constitutional law in the wake of written constitutions. In English common law the litigant's locus standi was the handmaid of judicial review of administrative actions. H Whenever a private individual challenged the decision of an administrative body the question always arose whether that individual had sufficient interest in the decision to justify the court's intervention. Hence, it is stated in Wade and Phillips, Constitutional Law (1965: 672): I

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'In administrative law it is necessary for a complainant to have a peculiar grievance which is A not suffered in common with the rest of the public.'

The turning point in England came with the procedural reforms in judicial review, vide s 31 of the Supreme Court Act, 1983, which was to lead in the course of the B 1980 to the recognition of the existence of public law as a distinct sphere from private law. In other parts of the Commonwealth, notably India and Canada, a similar but imperseptible development came to manifest itself in the doctrine of public interest litigation. Traditionally, common law confines standing to litigate in C protection of public rights to the Attorney general and this was reaffirmed by the House of Lords in Guriet v Union of Post Office Workers (2), and the Attorney General's discretion in such cases may be exercised at the instance of an individual. D

But before even the enactment of the Supreme Court Act a liberal view of standing was already taking shape and a generous approach to the issue was already considered desirable. This is illustrated by the words of Lord Diplock in IRC v National Federation of Self-Employed and Small Businesses Ltd (3) at p 107: E

'It would, in my view, be a grave lacuna in our system of public law if a pressure group, like the federation or even a single spirited taxpayer, were prevented by out-dated technical rules of locus standi from bringing the matter to the attention of the a court to vindicate the rule of law and get the unlawful conduct stopped.' F

Yet more contemporary developments indicate that in England judges are beginning to acknowledge the possible appearance of apparent 'busy-bodies' where public interest litigation is concerned. The late Raymond Blackburn, a G lawyer and former Member of Parliament, litigated several public interest questions in which he evidently had no greater interest than the other members of the public. In R v Metropolitan Police Commissioner, ex parte Blackburn, (4), he challenged police policy in not enforcing the gaming or obscenity laws, and in Blackburn v Attorney General (5), he challenged Government policy in joining the European Community. H

The developments in Canada have been no less breathtaking and we there find more generous standing rules applied than elsewhere in the older Commonwealth. This has been largely

facilitated by the existence of a written constitution and the incorporation of a charter of basic rights. The taxpayer is the central figure in the Canadian I
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A approach. In Thorson v AG of Canada, (6), a taxpayer was allowed by a majority to challenge the constitutionality of the Official Languages Act.
Laskin, J, speaking for the majority, contemplated '... whether a question of constitutionality should be immunized from judicial review by denying standing to anyone to challenge the impugned statute.' It was observed that standing in B constitutional cases was a matter for the exercise of judicial discretion. In the case of Nova Scotia Board of Censors v McNeil, (7), the Supreme Court again granted standing to a taxpayer to challenge the validity of a provincial Act regulating film C and theatre shows. This position is also illustrated in Minister of Justice v Borowski (8) where the majority granted standing to a taxpayer impugning federal legislation allowing abortion, and ruled:
D '... to establish status as a plaintiff in a suit seeking a declaration that the legislation is invalid, if there is a serious issue of invalidity, a person need only to show that he is affected by it directly or that he has a genuine interest as a citizen in the validity of the legislation and that there is no other and effective manner in which the issue may be brought before the Court.'
E The Canadian Supreme Court has in fact extended the liberalising affect of these judgments beyond constitutional cases.
Finally, it is important to revisit the Nigerian position. What was said in Thomas (1) was not merely an expression of the seeming inflexibility of s 6(6)(b) of the 1979 F Nigerian Constitution but it was also a product of colonial heritage. Soon after the attainment of independence Nigerian courts found themselves having to determine when and under what circumstances would a litigant be accorded standing to challenge the constitutionality of a statute or to ask for a judicial review. In Olawayin v AG of Northern Nigeria (9) the plaintiff had challenged the G constitutionality of a law which prohibited children from engaging in political activities. The trial court dismissed the claim on the ground that no right of the plaintiff was alleged to have been infringed and that it would be contrary to public principle to make the declaration asked for in vacuo. He appealed to the Federal H Supreme Court which dismissed the appeal on the same ground of absence of sufficient interest. In a classic restatement of the orthodox common law approach, Unsworth, FJ said, at p. 274:
'There was no suggestion that the appellant was in imminent danger of coming into conflict with the law or that there has been any real or I
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direct interference with his normal business or other activities - the appellant failed to show A that he had a sufficient interest to sustain a claim - to hold that there was an interest here would amount to saying that a private individual obtains an interest by the mere enactment of a law which may in future come in conflict.

Curiously, the Nigerian courts remained stuck in that position even when the 1979 B Constitution suggested a way out with the clause -

'Any person who alleges that any of the provisions of this chapter has been, is being or likely to be contravened in any State in relation to him may apply to a High Court in that State for redress.' C

This is illustrated in the much criticized decision in Adesanya v President of Nigeria & Anor (10). In that case the appellant brought action challenging the appointment by the President of the second respondent to the chairmanship of the D Federal Electoral Commission. The latter was at the material time the Chief Judge of Bendel State and was, therefore, disqualified from being appointed a member of the Commission. When the matter came up for final disposal before the Supreme Court it was unanimously held that the appellant had no locus standi E to bring the action on the ground that he had not demonstrated the appointment and subsequent confirmation by the Senate of the second respondent had in any way infringed his civil rights and obligations. Significantly, though, Fatayi-Williams, CJN who delivered the leading judgment had these interesting remarks to make (at p 20): F

'I take significant cognizance of the fact that Nigeria is a developing country with a multi-ethnic society and a written Federal Constitution, where rumour mongering is the pastime of the market places and the construction sites. To deny any member of such a society who is aware G or believes, or is led to believe, that there has been an infraction of any of the provisions of our Constitution, or that any law passed by any of our Legislative Houses, whether Federal or State, is unconstitutional, access to a Court of law to air his grievance on the flimsy excuse of lack of sufficient interest is to provide a ready receipe for organized disenchantment with the judicial process.' H

There was unfavorable reaction from the public and the profession to the Adesanya decision and the ambivalence of the Chief Justice in the above passage provided more ammunition. Henceforth many of the Nigerian courts preferred to use the broad and I

A liberal part of the judgment of the Chief Justice. Therefore, in Chief Isagba v Alege (11), Omosun, J accorded standing to a plaintiff by holding that any Nigerian taxpayer had sufficient interest in the observance of the provisions of the Constitution by any organ of the State or its agency. And in AG of Bendel State v AG of Nigerian (12), Obaseki, JSC, who was a party to the decision in Adesanya, came around to say: B

'The constitution has opened the gates to the courts by its provisions and there can be no justifiable reasons for closing the gates against those who do not want to be governed by a law enacted NOT in accordance with the provisions of the constitution.' C

The shift in Nigeria was sealed in Adediran v Interland Transport Ltd (13), where Karibi-Whyte, JSC said:

D '. . . the restriction imposed at common law on the right of action - is inconsistent with the provisions of s 6(6)(b) of the Constitution, 1979 and to that I think the high constitutional policy involved in s 6(6)(b) is the removal of the obstacles erected by the common law

requirements against individuals bringing actions before the court against the government and its institutions . . .' E

It was necessary to treat the subject at this length in order to demonstrate that Mr Mussa's appreciation of locus standi in the context of constitutional litigation no longer holds good. The notion of personal interest, personal injury or sufficient interest over and above the interest of the general public has more to do with F private law as distinct from public law. In matters of public interest litigation this Court will not deny standing to a genuine and bona fide litigant even where he has no personal interest in the matter. This position also accords with the decision in G Benazir Bhutto v Federation of Pakistan (14), where it was held by the Supreme Court that the traditional rule of locus standi can be dispensed with and procedure available in public interest litigation can be made use of if the petitionis brought to the court by a person acting bona fide.

H The relevance of public interest litigation in Tanzania cannot be over-emphasized. Having regard to our socio-economic conditions, this development promises more hope to our people than any other strategy currently in place. First of all, illiteracy is still rampant. We were recently told that Tanzania is second in Africa in wiping out illiteracy but that is statistical juggling which is not reflected on the ground. If we were that literate it would have been unnecessary for I

Hanang District Council to pass by-laws for compulsory adult education which A were recently published as Government Notice No 191 of 1994. By reason of this illiteracy a greater part of the population is unaware of their rights, let alone how the same can be realised. Secondly, Tanzanians are massively poor. Our ranking in B the world on the basis of per capita income has persistently been the source of embarrassment. Public interest litigation is a sophisticated mechanism which requires professional handling. By reason of limited resources the vast majority of our people cannot afford to engage lawyers even where they were aware of the infringement of their rights and the perversion of the constitution. C

Other factors could be listed but perhaps the most painful of all is that over the years since independence Tanzanians have developed a culture of apathy and silence. This, in large measure, is a product of institutionalised mono-party politics which in its repressive dimension, like detention without trial, supped up initiative and guts. The people found contentment in being receivers without being seekers. D Our leaders very well recognise this, and with the emergence of transparency in governance they have not hesitated to affirm it. When the National Assembly was debating Hon. JS Warioba's private motion on the desirability of a referendum before some features of the Constitution were tampered with, Hon. Sukwa Said E Sukwa, after two interruptions by his colleagues, continued and said (Parliamentary Debates, 26 August 1994):

'Mheshimiwa Spika, nilisema kwamba tatizo la nchi yetu sic wananchi. Lazima tukubali hili F kwa kweli, tatizo ni sisi viongozi. Kama sisi viongozi tutakubaliana, wananchi hawana matatizo. Mimi nina hakika Mheshimiwa Spika. Kama viongozi wa Tanzania wote, wa pande

zote mbili wa Zanzibar na wa Tanzania Bara, tutakubali kusema Kesho Serikali moja, basi itakuwa kesho, na wananchi watafanya maandamano kuunga mkono. Maana wananchi wetu hawana tatizo. Kwa nini tunawapolekea hili tatizo? Nasema tatizo ni sisi viongozi.' G

Given all these and other circumstances, if there should spring up a public-spirited individual and seek the Court's intervention against legislation or actions that H pervert the Constitution, the Court, as guardian and trustee of the Constitution and what it stands for, is under an obligation to rise up to the occasion and grant him standing.

The present petitioner is such an individual.

These principles find expression in our constitution. It is apparent I

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A from the scheme of Part III, Chapter One of the Constitution that every person in Tanzania is vested with a double capacity: the capacity as an individual and the capacity as a member of the community. In his former capacity he enjoys all the basic rights set out in art 12 to art 24; in the latter capacity he is bound to discharge duties towards the community as indicated in art 25 to art 28. This B scheme reflects the modern trend in constituionalism which recognises the pre-emimence of the community in the formulation of the constitution. It is recognised that rights are correlative with functions: we have them that we may make our contribution to the social end. Our Constitution goes further to C emphazise the two capacities by equipping the individual with a double standing to sue. In the first place he is vested with standing by art 30(3) which states:

D '(3) Where any person alleges that any provision of this Part of this Chapter or any law involving a basic right or duty has been, is being or is likely to be contravened in relation to him in any part of the United Republic, he may, without prejudice to any other action or remedy lawfully available to him in respect of the same matter, institute proceedings for relief in the High Court.'

E This provision, in my view, caters for both personal and public interest litigation for at times the two may prove inseparable. A person who sues because he desires to be an independent parliamentary candidate where the system does not so allow necessarily shoulders the burden for the public. It is also important to note F that under this provision action lies where a person's right 'has been, is being or is likely to be contravened.' These are plain and clear words which admit of no controversy. Standing is therefore available under the Constitution even where contravention of a basic right is reasonably apprehended. The case of Thomas G (1), and in as much as it was decided in deference to the much criticized decision in Adesanya (10), has no relevance in the context of our Constitution. In the upshot it is not correct to say, as Mr Mussa suggested, that the petitioner has no locus standi because he cannot show that his rights have already been infringed. In my view he is within the purview of art 30(3) if there is in existence a law the operation of which is likely to contravene his basis rights. H

Standing is additionally conferred by art 26(2), and this states:

'(2) Every person is entitled, subject to the procedure provided for by the law, to institute proceedings for the protection of the Constitution and legality.' I

Mr Mussa suggested that this provision has to be read with art 30(3) and cannot A be used in lieu of the latter. With respect, I cannot agree. It is a cardinal rule of statutory and constitutional interpretation that every provision stands independent of the other and has a special function to perform unless the contrary intention appears. There is nothing in art 26(2) or elsewhere to link it to art 30(3). The only B linkage is to art 30(4) and this is one of procedure rather than substance. Clause (4) empowers Parliament to make provision for the procedure relating to institution of proceedings under the article. It has not done so to date but that does not mean that the court is hamstrung. In DPP v Daudi Pete, (15), the Court of Appeal stated C in that ' - until the Parliament legislates under sub-art (4) the enforcement of the Basic Rights, Freedoms and Duties may be effected under the procedure and practice that is available in the High Court in the exercise of its original jurisdiction, depending on the nature of the remedy sought.' I hold art 26(2) to be an D independent and additional source of standing which can be invoked by a litigant depending on the nature of his claim. Under this provision, too, and having regard to the objective thereof - the protection of the Constitution and legality - a E proceeding may be instituted to challenge either the validity of a law which appears to be inconsistent with the Constitution or the legality of decision or action that appears to be contrary to the Constitution or the law of the land. Personal interest is not an ingredient in this provision; it is tailored for the community and falls under the sub-title 'Duties to the Society.' It occurs to me, therefore, that art 26(2) enacts F into our Constitution the doctrine of public interest litigation. It is then not in logic or foreign precedent that we have to go for this doctrine; it is already with us in our own Constitution.

I hasten to emphasize, however, that standing will be granted on the basis of public interest litigation where the petition is bona fide and evidently for the public G good and where the Court can provide an effective remedy. This point is underscored in Peoples Union for Democratic Rights v Minister of Home Affairs (16), where it was stated that 'public interest litigation' meant nothing more than what it stated, namely, it is a litigation in the interest of the public. It is not the type of litigation which is meant to satisfy the curiosity of the people, but it is a litigation H which is instituted with a desire that the court would be able to give effective relief to the whole or a section of the society. It is emphasized in the case that the condition which must be fulfilled before public interest litigation is entertained by the court is that the court should be in a position I

A to give effective and complete relief. If no effective or complete relief can be granted, the court should not entertain public interest litigation.

I gave serious consideration to the matters raised in this petition and the prayers connected therewith and I was persuaded that in quite a number of areas the B public interest overwhelmed what appeared to be a private factor. I therefore allowed arguments to proceed on the issues reviewed above. But in the light of those arguments and what is stated in this

paragraph, it may be necessary to reconsider the position of one issue at the appropriate stage later. Meanwhile I will C turn to dispose of the question of cause of action. Cause of action is not a problem in this petition. Mr Mussa seemed to suggest, but I respectfully disagree, that in order for cause of action to arise an event injurious to the rights of the petitioner must have taken place. In my view, where the issue is whether a law is unconstitutional the court looks at the law itself but not at how it works. The D following passage from Chitaley & Rao, The Constitutionof India (1970: 686), citing Prahalad Jena v State (17), is to the point:

E 'In order to determine whether a particular law is repugnant or inconsistent with the Fundamental Rights it is the provisions of the Act that must be looked at and not the manner in which the power under the provision is actually exercised. Inconsistency or repugnancy does not depend upon the exercise of the power by virtue of the provisions in the Act but on the nature of the provisions themselves.' F

I agree and I do not wish to add anything more. In this petition the dispute is over the validity of various laws and this, in my view, constitutes the necessary cause of action. A situation could certainly arise where the cause of action would depend upon actual exercise of power. Such a situation is exemplified in this petition G where the constitutionality of the appointment of Zanzibaris to non-union positions on the Mainland is questioned. In that context it is the appointments themselves that constitute the cause of action, but that has to do with the validity of the action H rather than a law. There now remains the question of justiciability of the claims but since that has more to do with the first of the issues, I will now turn to consider them.

The first issue seeks to determine the immutability of basic rights enacted in the Constitution. This turns on the power of the Parliament to amend the provisions providing for these rights. Specifi- I

cally, what is at issue are the amendments to art 20 and art 39 of the Constitution A vide the Eighth Constitutional Amendment Act, 1992. In its original form art 20 read as follows:

'20 - (1) Subject to the laws of the land, every person is entitled to freedom of peaceful assembly, association and public expression, that is to say, the right to assemble freely and B peaceably, to associate with other persons and, in particular, to form or belong to organisations or associations formed for the purposes of protecting or furthering his or any other interests.

(2) Subject to the relevant laws of the land, a person shall not be compelled to belong to any association. C

In its amended form clause (1) remains unaffected, hence the rights and freedoms spelt out therein remain as before. Our interest in this petition centres on the freedom of association which, under the present multi-party system, includes the D formation of political parties. Clause (2) was also unaffected by the amendment save that it now became clause (4). In between there are new clauses (2) and (3) which it is necessary to set out in full. (The translation from Kiswahili is partly my own and partly adapted). E

(2) Without prejudice to subsection (1) no political party shall qualify for registration if by its constitution and policy -

(a) it aims to advocate or further the interests of -

(i) any religious belief of group;

(ii) any tribal, ethnic or racial group; F

(iii) only a specific area within any part of the United Republic;

(b) it advocates the breaking up of the Union constituting, the United Republic;

(c) it accepts or advocates the use of force or violence as a means of attaining its political objectives; G

(d) it advocates or aims to carry on its political activities exclusively in one part of the United Republic; or

(e) it does not allow periodic and democratic elections of its leadership

(3) Parliament may enact legislation prescribing conditions which will ensure compliance by political parties with the provisions of subsec 2 in relation to the people's freedom and right of association and assembly. H

Pursuant to clause (3), Parliament enacted the Political Parties Act, 1992 providing for the registration of political parties and other matters. Clause (2) above was lifted in its entirety and re- I

A enacted as s 9(2) of the Act. In addition s 8 of the Act provided for a two-stage registration - provisional and full registration. Provisional registration is done upon fulfilment of the conditions prescribed in s 9; full registration is effected after fulfilment of the conditions in s 10 which reads:

B '10 - No political party shall be qualified to be fully registered unless -

(a) it has been provisionally registered;

(b) it has obtained not less than two hundred members who are qualified to be registered as voters for the purpose of parliamentary elections from each of at least ten Regions C of the United Republic out of which at least two Regions are in Tanzania Zanzibar being one Region each from Zanzibar and Pemba; and

(c) it has submitted the names of the national leadership of the party and such leadership draws its members from both Tanzania Zanzibar and Tanzania Mainland; D

(d) it has submitted to the Registrar the location of its head office within the United Republic and a postal address to which notices and other communications may be sent.

E It is contended by the petitioner that ss 8, 9 and 10 of the Political Parties Act are unconstitutional in the sense that they impose enough conditions on the formation of political parties and thereby inhibiting enjoyment of the freedom of association enacted in art 20(1). It is further contended that art 20(2) and (3) from which those sections derive are for the same reason unconstitutional. I am therefore invited to strike out art 20(2) and (3) of the Constitution as well as ss 8, 9, 10 and 15 of the Political Parties Act. F

On the other hand, art 39 previously provided as follows:

G '39. No person shall be eligible for election to the office of President of the United Republic unless he -

(a) has attained the age of forty years; and

(b) is otherwise qualified for election as a Member of the National Assembly or of the (Zanzibar) House of Representatives.

H As amended by the Eighth Constitutional Amendment Act, the above paragraphs are retained but re-numbered (b) and (d) respectively. There is added new paragraphs (a) and (c) which state (my translation):

(a) is a citizen of the United Republic by birth;

(d) is a member of and sponsored by a political party. I

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The requirement for membership of and sponsorship by a political party is A extended to candidacy for the National Assembly in art 67 and art 77 as well as for local councils in s 39 of the Local Authorities (Elections) Act 1979 as amended by the Local Authorities (Elections) (Amendment) Act, 1992 (No 7), s 9. The petitioner contends that the requirement for membership of and sponsorship by a political party abridges the right to participate in national public affairs granted by art 21(1) which states: B

'21 - (1) Every citizen of the United Republic is entitled to take part in the government of the country, either directly or through freely chosen representatives, in accordance with procedure provided by or under the law. C

I am therefore called upon to strike out para (d) in art 39 and wherever else the requirement for membership of and sponsorship by a political party occurs. D

As stated earlier the issue of immutability turns on Parliament's power to amend the Constitution. In assessing this power it is appropriate to recall, in the first place, that fundamental rights are not gifts from the State. They inhere in a person by reason of his birth and are therefore prior to the State and the law. In our times E one method of judging the character of a government is to look at the extent to which it recognises and protects human rights. The raison d'etre for any government is its ability to secure the welfare of the governed. Its claim to the allegiance of the governed has to be in terms of what that allegiance is to serve. Allegiance has to be correlative with rights. Modern constitutions like our own have F enacted fundamental rights in their provisions. This does not mean that the rights are thereby created; rather it is evidence of their recognition and the intention that they should be enforceable in a court of law. It can therefore be argued that the very decision to translate fundamental rights into a written code is by itself a restraint upon the powers of Parliament to act arbitrarily. G

As aptly observed by Chief Justice Nasim Hassan Shah in Muhammed Nawaz Sharif v President at Pakistan (18), at p 557: H

'Fundamental Rights in essence are restraints on the arbitrary exercise of power by the State in relation to any activity that an individual can engage. Although constitutional guarantees are often couched in permissive terminology, in essence they impose limitations on the power of the State to restrict such activities. Moreover, Basic or Fundamental Rights of individuals which presently stand I

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A formally incorporated in the modern constitutional documents derive their lineage from and are traceable to the ancient Natural Law.

Our Constitution confers on Parliament very wide powers of amendment but these powers are by no means unlimited. These powers are to be found in art 98(1) and (2) and it is necessary to set out the relevant parts. B

'98 - (1) Parliament may enact legislation altering any provision of this Constitution - (emphasis added)

C (2) For the purpose of construing the provisions of subsec (1), references to alteration of any provision of this Constitution or of any law include references to the amendment or modification, of those provisions, suspension or repeal and replacement of the provisions or the re-enactment or modification in the application of those provisions.

D These powers are evidently wide. It has to be accepted, in the first place, that Parliament has power to amend even those provisions providing for basic human rights. Secondly, that power is not confined to a small sphere.

E It extends to modification of those provisions, suspension or repeal and replacement of same, re-enactment or modification in the application thereof. Drastic as some of these terms may sound, I still do not believe that they authorise abrogation from the Constitution of these rights. The provisions of art 98 should be read in the light of the clawback clauses in art 30(2) and 31. The former reads as follows: F

'(2) It is hereby declared that no provision contained in this Part of this Constitution, which stipulates the basic human rights, freedoms and duties, shall be construed as invalidating any existing law or prohibiting the enactment of any law or the doing of any lawful act under such law, making provision for - G

(a) ensuring that the rights and freedoms of others or the public interest are not prejudiced by the misuse of the individual rights and freedoms; H

(b) ensuring the interests of defence, public safety, public order, public morality, public health, rural and urban development planning, the development planning, the development and utilisation of mineral resources or the development or utilisation of any other property in such manner as to promote the public benefit;

(c) ensuring the execution of the judgment or order of a court given or made in any civil or criminal proceeding; I

(d) the protection of the reputation, rights and freedoms of others or the private lives of A persons involved in any court proceedings, prohibiting the disclosure of confidential information, or the safeguarding of the dignity, authority and independence of the courts;

(e) imposing restrictions, supervision and control over the establishment, management and operation of societies and private companies in the country; or B

(f) enabling any other thing to be done which promotes, enhances or protects the national interest generally.

Article 31, on the other hand, empowers Parliament, notwithstanding the C provisions of art 30(2), to legislate for measures derogating from the provisions of art 14 (Right to live) and art 15 (Right to personal freedom) during periods of emergency, or in ordinary times in relation to individuals who are believed to be conducting themselves in a manner that endangers or compromises national security. We may also refer to art 97(1) which provides in part - D

(1) subject to the other provisions of this Constitution, the legislative power of Parliament shall be exercised through the National Assembly ...

Reading all these provisions together, it occurs to me that Parliament's power in E relation to the amendment of the provisions under Part III of Chapter One of the Constitution can only be exercised within the limits of art 30(2) and art 31. Hence, F even if it is a suspension, or a repeal and replacement it must be justifiable within the scope of the two provisions. I have therefore come to the conclusion, and Mr Mussa concedes, that Parliament's power of amendment are not unlimited. It should be recognised, on the other hand, that society can never be static. New times bring with them new needs and aspirations. Society's perception G of basic human rights is therefore bound to change according to changed circumstances, and that makes it imperative for Parliament to have power to alter every provision of the Constitution. What remains immutable, therefore, is the ethic of human rights but not the letter by which they are expressed. H

We turn to consider whether the amendments complained of were not within the constitutional limits, beginning with art 20(2) and (3). The former does not abrogate or abridge beyond the purview of art 30(2) the right of association guaranteed under art 20(1). It merely lays down the conditions a political party has to fulfil before registration and all these conditions are within the perimeters of art I

A 30(2). The conditions are clearly aimed at the promotion and enhancement of public safety, public order and national cohesion. There cannot be any such thing as absolute or uncontrolled liberty wholly freedom without restraint, for that would lead to anarchy and disorder. Indeed, in a young country like ours, nothing could be B more suicidal than to licence parties based on tribe, race or religion. The problem with art 20(3) is even less apparent. It is an enabling provision giving Parliament power to enact a law for the registration of political parties and for ensuring compliance with art 20(2) by those parties. It does not expressly tell C Parliament what to write in that law. I am satisfied and hold that art 20(2) and (3) were validly enacted. There remains, however, the provisions of the Political Parties Act which fall for comment under the second issue. Next is art 39 and allied articles and provisions relating to presidential, parliamentary and local council candidacies. Once again, I am unfortunate in having to say that these D amendments were within the powers of the Parliament. They do not abrogate but merely modify the application of art 21(1) by providing that participation in national public affairs shall be through political parties. As seen earlier, modification in application is covered under art 98(2). I also think that the amendments are within E the ambit of art 30(2) if public order be taken as having supplied the inspiration. These amendments were, therefore, validly

made. It should be understood, however, that I am at this juncture talking of validity in strict legal terms; the amendments are otherwise not free from difficulties and these are dealt with under the fifth issue. F

The Court's power to declare a law void is founded in art 64(5). Having held that the impugned constitutional amendments were validly made, I do not have to consider whether such amendments are 'law' within the meaning of the article. I have read in this connection the interesting arguments in the cases of Golaknath v State of Punjab (19) and Kesavananda v State of Keral (20) but in view of the G decision I have reached, I am unable to take advantage of them.

The second issue questions the constitutionality of ss 8, 9 10 and 15 of the H Political Parties Act. Much effort had gone into this matter when I was obliged to admit that the trial of this issue should have been stayed. Last year the petitioner filed at the Dar es Salaam registry of this Court an application for orders of certicrari and mandamus. That was Miscellaneous Civil Cause No 67 of 1993, the applicants being himself and the Democratic Party and the respondents being the Attorney General and the Registrar of Political Parties. The grounds for the application were that the Registrar I

was biased in refusing to register the Democratic Party and that the Political A Parties Act (apparently the whole of it) was unconstitutional and void. He was praying for orders to quash the Registrar's decision and to direct him to reconsider the Democratic Party's application according to law. The application was heard and subsequently dismissed by Maina, J on 14 December, 1993. Two days later B the petitioner lodged a notice of appeal. There is now pending before the Court of Appeal a Civil Appeal No 24 of 1994, in which the first ground of appeal states:

'The learned judge erred in law in failing to hold that section 8 and 10 of the Political Parties C Act, 1992, Act No 5 of 1992 are violative of art 13(6)(a) of the Constitution of the United Republic of Tanzania and therefore null and void on the ground that they do not provide for fair hearing before the Second Respondent's decision to refuse full registration of a political party.

The memorandum concludes: D

'It is proposed to ask the Court for the following orders: -

(i) an order striking out ss 8, 10 and 16 of the Political Parties Act, 1992.' E

In the present petition I am confronted with the same prayer with slight variation, namely, to strike out ss 8, 9 10 and 15 of the same Act. In other words a suit in which the matter in issue is substantially in issue in another suit between the same parties is pending in another court in the country. It seems also that the Dar F es Salaam suit was instituted earlier because the record of this petition shows that its trial was being put off to await the outcome of the former. In those proceedings we do not have a prescribed procedure but we have invariably invoked and been guided by the provisions of the Civil Procedure Code, 1966. Section 8 of the Code provides thus: G

8. No court shall proceed with the trial of any suit in which the matter in issue is also directly or substantially in issue in a previously instituted suit between the same parties, or between parties under whom they or any of them claim litigating under the same title where such suit is pending in the same or any other court in Tanganyika having jurisdiction to grant the relief claimed. H

This provision is in parimateria with s 10 of the Indian Code of Civil Procedure, 1908. Mulla observes in relation to the latter that the object is to prevent courts of concurrent jurisdiction from simul- I

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A taneously trying two parallel suits in respect of the same matter in issue. It goes on to claim, citing a 1919 obscure authority, that the section enacts merely a rule of procedure and a decree passed in contravention of it is not a nullity and cannot be disregarded in execution proceedings. I think, however, that this might be true where the subsequent suit is decided without knowledge of the existence of the previous suit. B

It is the pendancy of the previously instituted suit that constitutes a bar to the trial of the subsequent suit. The word 'suit' has been held to include 'appeal': see Raj Spinning Mills v AG King Ltd (21). The 'matter in issue' in the provision has also C been construed as having reference to the entire subject matter in controversy between the parties and not merely one or more of the several issues: see Hariram v Hazi Mohamed (22). The same position was stated by the Court of Appeal of Eastern Africa in Jadva Karson v Harman Singh Bhogal (23), when they were considering s 6 of Kenya Civil Procedure Ordinance which is again in D parimateria with our s 8. The case before me is, of course, a novelty. Like the eye of a butterfly, it is a composite of several petitions wrapped up into one. When considering the expression 'matter in issue' one has to consider each issue independently for they have no relationship. There is not one subject matter in E controversy between the parties but several. In these circumstances the second issue is severable as it could indeed have been tried in a separate suit. In the circumstances of this case 'matter in issue' must be taken to be matter in issue in each of the six issues framed and I am satisfied that the same matter is in issue in the appeal pending before the Court of Appeal. F

In Jinnat Bibi v Howeah Jute Mills Co Ltd (24), it was held that the provisions of s 10 of the Indian Code were mandatory and left no discretion to the courts in respect of the stay of suits when circumstances are such as to invoke the G operation of that section. It was further held that one test of the application of that to a particular case is whether on the final decision being reached in the previous suit such decision would operate as res judicata in the subsequent suit. Indian decisions are certainly not binding on this Court, but they deserve the greatest respect where they expound a provision which was previously our own and which remains in parimateria with our own. H

The Indian Code of Civil Procedure was in application in Tanganyika until 1966 and s 10 thereof is in parimateria with our s 8. It is therefore not only in courtesy but also in common sense that I consider myself entitled to rely on these decisions. In so doing, I I

hold that the provisions of s 8 of our code are mandatory and provide no room for A discretion in circumstances where it is invokable. It is invokable in the instant case. Moreover, there is no doubt that the final decision in the pending appeal would operate as res judicata in the instant petition. The question is not whether I am in a position to decide the matter ahead of the Court of Appeal; courts of law B are not racecourses. The point is that I am bound to stop in my tracks and let the previous suit proceed to finality because the decision on the matter in issue would operate as res judicata on the same matter in the suit before me. I will therefore stay the decision on the second issue until the outcome of Civil Appeal No 24 of 1994. C

In the third issue the Court is invited to pronounce on the constitutionality of ss 5(2), 13, 25, 37-47 of the Newspapers Act, 1976 and para 12 of GN No 166 of 1977. I have two observations to make in this connection. First, it must be realised that the constitutionality of a provision or statue is not found in what could happen D in its operation but in what it actual provides for. Where a provision is reasonable and valid the mere possibility of its being abused in actual operation will not make it invalid: Collector of Customs (Madras) v NS Chetty (25). It seems E to me, with respect, that much of what was said against the above provisions reflected generally on what could happen in their operation rather than on what they actually provided for. I was generally referred to the decision of the Court of Appeal in Kukutia ole Pumbum v Attorney General (26), but I think that case F covers a different situation - the situation where a person was deprived of his right to sue unless he was permitted to do so by the defendant (the Government). The provisions complained of however, are administrative and implementational and their constitutionality can only be challenged if they were not within the power of the Legislature to enact them. G

Secondly, and most importantly, I have unfortunately come to doubt the petitioner's standing in this issue. As stated before, our Constitution confers a double capacity on every person - his personal and his community capacities. Now, in what capacity did the petitioner take up these provisions? It cannot be in his personal H capacity because there is nothing in the provisions or any of them which is shown to have contravened, is contravening or is likely to contravene his right to receive or impart information. The contravention has to be read in the provisions themselves. It transpires that the petitioner's complaint is in fact founded on the banning of the 'Michapo' and 'Cheka' newspapers vide Government Notice I

A No 8 of 1993. That is improper. The use or misuse of the powers granted by s 25, the relevant provision in that connection, has nothing to do with the validity of that provision as such. What would be relevant is whether Parliament had no power to grant those powers. As for the misfortunes of 'Michapo' and 'Cheka' the B doors were open for the option of judicial review but it seems better options were found. Can we alternatively say that this issue falls under public interest litigation? I don't think so either. As seen before, public interest litigation is litigation in the interest of the public. In other words, the general public, or section thereof,

must C be seen to be aggrieved by the state of the law and to be desirous of redress. There could probably be provisions in the Newspaper Act one could consider oppressive, unreasonable and even unconstitutional, but that is beside the point; the point is that there is no evidence of public agitation against that law. And by 'public' I do not mean merely newspaper editors but the Tanzanian public D generally. Ironically, whatever ills this law may be identified with appear to be overshadowed by the unprecedented upsurge of private newspapers in recent years. As stated in Sanjeev Coke Manufacturing Co v Bharat Coking Coal Ltd E (27), courts are not authorised to make disembodied pronouncements on serious and cloudly issues of constitutional policy without battle lines being properly drawn. Judicial pronouncements cannot be immaculate legal conceptions. It is but right that no important point of law should be decided without a proper issue between parties properly ranged on either side and a crossing of the swords. It is F inexpedient for the Court to delve into problems which do not arise and express opinion thereon. In the premises I decline to pronounce on the third issue.

The fourth issue brings us to the provisions of the Police Force Ordinance and the Political Parties Act touching on assemblies and processions. Under s 40 of the G former a permit is necessary to organise an assembly or procession in a public place. The permit is grantable by the District Commissioner. Similarly, political parties require a permit from the District Commissioner to hold public meetings pursuant to the provisions of s 11(1) of the Political Parties Act. Section 41 of the H Ordinance empowers a police officer above the rank of inspector or any magistrate to stop or prevent any assembly or procession if the holding or continuance of it "is imminently likely to cause a breach of the peace, or to prejudice the public safety ...' The police officer or magistrate may therefore give orders, including orders for the dispersal of the assembly or procession. Section 42 defines what constitutes an unlawful assembly or I

procession, namely, an assembly or procession not authorised by a permit, where A one is required, or one held in contravention of the conditions thereon or in disregard of orders by the police or magistrate. Section 43 is the penal provision for disobediences, etc. These provisions i.e. ss 41, 42 and 43, are imported into the Political Parties Act vide s 11(2) thereof. It was argued for the petitioner that B these provisions are inconsistent with the freedom of peaceful assembly and public expression which is guaranteed under art 20(1). Mr Mussa, on the other hand, thought they were all supervisory in character, intended to ensure peace and good order, to the end that the rights and freedoms may be better enjoyed. C

A better approach to these provisions is to distinguish their functions. First of all, there is the requirement for a permit grantable by the District Commissioner and this falls under s 40 of the Ordinance and s 11(1) of the Act. Next there is control of the meetings and processions and this falls under s 41, the exercise of that D power being vested in the police and the magistracy. Finally, we have the criminal law provisions in ss 42 and 42. In considering the question of constitutionality these distinctions have to be kept in mind. I draw these distinctions also because not all meetings or processions require a permit, yet all attract police and magisterial

supervision. By virtue of GN No 169 of 1958, religious processions as E well as religions, social, educational, entertainment and sporting assemblies do not require a permit; by virtue of GN No 98 of 1960 assemblies convened by rural local authorities within the areas of their jurisdiction do not require a permit; and by virtue GN No 237 of 1962 assemblies convened by Municipal or Town Councils within the area of their jurisdiction do not require permits either; but all these F events attract police and magisterial supervision. Let us now look at the character of the three divisions in relation to the Constitution. Section 40(2) provides in part: G

'(2) Any person who is desirous of convening, collecting, forming or organising any assembly or procession in any public place, shall first make application for a permit in that behalf to the District Commissioner . . . and if the District Commissioner is satisfied, having regard to all H the circumstances, . . . that the assembly or procession is not likely to cause a breach of the peace . . . he shall, subject to the provisions of sub-section (3), issue a permit . . .'

Section 11(1) of the Political Parties Act is to the same effect although it does not expressly set out all that is in the above provi- I

A sion. These provisions may then be contrasted with the provisions of art 20(1) which states in part:

(1) Subject to the laws of the land, every person is entitled to freedom of peaceful assembly, association and public expression, that is to say, the right to assemble freely and peaceably . . . B

The Constitution is the basic or paramount law of the land and cannot be overridden by any other law. Where, as in the above provision, the enjoyment of a constitutional right is 'subject to the laws of the land,' the necessary implication is that those laws must be lawful laws. A law which seeks to make the exercise of C those rights subject to the permission of another person cannot be consistent with the express provisions of the Constitution for it makes the exercise illusory. In this class are s 40 of the Police Force Ordinance and s 11(1) of the Political Parties Act. Both provisions hijack the right to peaceful assembly and procession D guaranteed under the Constitution and place it under the personal disposition of the District Commissioner. It is a right which cannot be enjoyed unless the District Commissioner permits. That is precisely the position that was encountered in ole Pumbun (26) where the right to sue the Government could not be exercised save with the permission of the Government. The Court of Appeal was prompted to say: - E

'. . . a law which seeks to limit or derogate from the basic right of the individual on grounds of F public interest will be saved by art 30(2) of the Constitution only if it satisfies two essential requirements: First such a law must be lawful in the sense that it is not arbitrary. It should make adequate safeguards against arbitrary decision, and provide effective controls against abuse by those in authority when using the law. Secondly, the limitation imposed by such law must not be more than is reasonably necessary to achieve the legitimate object. This is what G is also known as the principle of proportionality . . . If the law . . . does not meet both requirements, such law is not saved by art 30(2) of the Constitution, it is null and void.'

H Section 40 does not meet these requirements. It is in the absolute discretion of the District Commissioner to determine the circumstances conductive to the organisation of an assembly or procession; there is no adequate or any safeguards against arbitrary exercise of that discretion and there is no mechanism for challenging his decisions, except probably by way of judicial review which is tortuous and unbeneficial for the purpose of assemblies and pro- I

cessions. I have easily come to the conclusion that the requirement for a permit A infringes the freedom of peaceful assembly and procession and is therefore unconstitutional. It is not irrelevant to add, either, that in the Tanzanian context this freedom is rendered the more illusory by the stark truth that the power to grant permits is vested in cadres of the ruling party. B

Coming to s 41, I am of the view that the provision does not operate to take away the right to hold assemblies or processions. it only empowers the police and the magistracy to step in for the preservation of peace and order. The provision is thus saved by art 30(2)(b), it being in furtherance of the State's normal functions of C ensuring public safety and public order and is reasonably justifiable in a democratic society. As rightly remarked by Mr. Mussa the enjoyment of basic human rights presupposes the existence of law and order. A provision like s 41 is therefore a necessary concomitant to the realisation of these rights. Moreover, there is inherent in the provision a safeguard against arbitrary use. It comes into D play when the holding or continuance of an assembly or procession 'is imminently likely to cause a breach of the peace, or to prejudice the public safety or the maintenance of public order or to be used for any unlawful purpose,' (emphasis added) and therefore meets what is termed the 'clear and present danger' test. In Muhammed Nawaz Sharif (18) cited earlier, Saleem Akhtar, J said, at pp 832--833: E

'Every restriction (on basic rights) must pass the test of reasonableness and overriding public interest. Restriction can be imposed and freedom . . . may be curtailed provided it is justified F by the 'clear and present danger' test enunciated in Saia v New York (1948) 334 US 558 that the substantive evil must be extremely serious and the degree of imminence extremely high.'

Section 41, in my view, is conditioned on a clear and present danger where the G substantive evil is extremely serious and the degree of imminence extremely high. A situation befitting the application of the provision can be found in the Guyanese case of CR Ramson v Lloyed Barker and the Attorney General (28). That case H arose from the dispersal of a political meeting by the police. The plaintiff, an Attorney-at-Law, was standing near his motor car parked by the roadside discussing with a colleague the methods used by the police to disperse the crowd. A policeman came up, held the plaintiff by his arm and asked him what he was doing there, and was told 'that is my business.' Other policemen came I

A up and surrounded the plaintiff, who was then jabbed several times in the ribs with a baton by another policeman who ordered him into the car. The plaintiff and his colleague then got

into the car unwillingly and drove away. The plaintiff later brought action alleging, inter alia, an infringement of his right to freedom of assembly, expression and movement. It was held by the Court of Appeal that there B was no infringement of the constiutional right to the freedom of assembly, expression or movement as the action of the police was not directed towards a hindrance or deprivation of these constitutional freedoms.

C These factors apart, it is equally apparent that the petitioner admits the legitimate role of the police at assemblies and processions although, somehow, he does not realise that this role is specially authorised by s 41. Para 19(h) of the petition states in part:

D 'The court should also declare that a citizen has right to convene a peaceful assembly or public rally and the right to make a peaceful demonstration or procession without a permit from anybody except that he should just inform the police before doing so'. (my emphasis).

E I would not wish to believe that by this prayer it is intended that the police should attend assemblies and processions to applaud the actors and fold their arms in the face of an imminent break down in law and order. I am satisfied that s 41 is a valid provision.

F Finally, ss 42 and 43. The former defines an unlawful assembly or procession and the latter punishes the same. Article 30(2)(a) and (b) of the constitution empowers the Legislature to enact legislation for ensuring that the rights and freedoms of others or the public interest are not prejudiced by the misuse of the individual rights and freedoms and for ensuring public safety and public order. This power, in my view, includes the power to prescribe penalties for criminal G breaches. In other words, the penalties are necessarily concomitant to the effective exercise of police and magisterial powers under the other provisions. I consider the provisions valid as well.

H At this stage I will proceed to show the significance of the distinction I have been making. I have held that the requirement for a permit is unconstitutional but not the police magisterial and penal role. The crucial question now is whether these aspects can be severed. Severance is provided for under art 64(5) which states that 'any other law inconsistent with the provisions of the Constitution . . . shall, to the extent of the inconsistency, be void.' It is therefore established that where the valid portion is severable from the rest, I

that portion will be maintained provided it is sufficient to carry out the purpose of A the Act. Delivering the judgment of the Privy Council in AG of Alberta v AG of Canada (29) at p 516, Viscount Simon said:

'The real question is whether what remains is so inextricably bound up with the part declared B invalid that what remains cannot independently survive, or as it has sometimes been put, whether on a fair reivew of the whole matter it can be assumed that the Legislature would have enacted what survives without enacting the part that is ultra vires at all.' C

I am in no doubt whatsoever that the permit aspect can be expunged and expelled from the law without prejudicing the rest. This is illustrated by the fact that the supervisory aspects already operate independently where a permit is not required. It is evident, therefore, that the Legislature could have enacted the supervisory aspects without enacting the permit aspect. Having held, and I repeat, that the D requirement for a permit is unconstitutional and void, I

direct the provisions of s 40 of the Police Force Ordinance and s 11(1)(a) of the Political Parties Act, and all provisions relating thereto and connected therewith, shall henceforth be read as if all reference to a permit were removed. It follows that from this moment it shall be E lawful for any person or body to convene, collect, form or organise and address an assembly or procession in any public place without first having to obtain a permit from the District Commissioner. Until the Legislature makes appropriate arrangements for this purpose, it shall be sufficient for a notice of such assembly or procession to be lodged with the police, being delivered a copy to the District commissioner for his information. F

In reaching this decision, I am certainly aware of the decision cited to me in C Mtikila & Ors VR (30). In that case the present petitioner and others were charged before the District Court of Dodoma with three counts, the first of which alleged G 'refusing to desist from convening a meeting or assembly after being warned not to do so by police officers contrary to ss 41 and 42 of the Police Force Ordinance, Cap 322.' They were convicted and fined Shs 500/= each. They appealed to this H Court and it was contended, inter alia, that s 41 was unconstitutional. Mwalusanya, J agreed and said: 'I construe s 41 of the Police Force Ordinance to be void. From now onwards this section is deleted from the Statute Book.' I am given to understand that an appeal has been lodged against that decision. I

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A The fact that an appeal is pending naturally restrains me in my comments on that decision, yet I cannot avoid to show, albeit briefly, why I find that decision difficult to go by. The learned judge did not merely hold s 41 to be unconstitutional; he went further and held the entire trial to be a nullity. He said between pp 23 and 25 of his judgment: B

'In my judgment I find that the denial by the trial magistrate to have the appellants have access to the documents they required for their defence was a fundamental defect which is not curable - The error is so fundamental that it has rendered the whole trial a nullity.' C

This is significant indeed. It is established practice that where a matter can be disposed of without recourse to the Constitution, the Constitution should not be involved at all. The Court will pronounce on the constitutionality of a statue only when it is necessary for the decision of the case to do so: Wahid Munwar Khan v D State (31). In that case a passage from Coday's Treatise on Constitutional Limitations was also cited in these terms:

E 'In any case where a constitutional question is raised, though it may be legitimately presented by the record, yet if the record presents some other clear ground the court may rest its judgment on that ground alone, if the other questions are immaterial having regard to the view taken by the court.'

F The Supreme Court of Zimbabwe expressed the same view in Minister of Home Affairs v Hickke & Ors (32), where Georges, CJ said (at 758):

'Courts will not normally consider a constitutional question unless the existence of a remedy depends upon it; if a remedy is available to an applicant under some other legislative G provision or on some other basis, whether legal or factual, a court will usually decline to determine whether there has been, in addition, a breach of the Declaration of Rights.'

H And here at home the Court of Appeal had this to say in Attorney General v WK Butambala (33):

'We need hardly say that our Constitution is a serious and solemn document. We think that invoking it and knocking down laws or portions of them should be reserved for appropriate and really serious occasions.' I

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The court continued: A

'... it is not desirable to reach a situation where we have 'ambulance courts' which go round looking for situations where we can invalidate statutes.'

It is evident that the appeal under reference could have been disposed of on the B ground that the trial was a nullity without going into the constitutionality of s 41. It is indeed curious that a trial which was adjudged a nullity could still provide the basis for striking down s 41. On these grounds and others, I was unable to benefit from the decision of my learned brother. C

The fifth issue takes us back to the amendments to the Constitution and elsewhere which make membership of and sponsorship by a political party mandatory for a person to contest presidential, parliamentary or local authority elections. I held that the amendment was constitutionally valid but I reserved my D position on their practical implications until this stage. It is essential for the purpose of the present exercise, and for ease of reference, to set out side by side the provisions of art 21(1), art 20(4) and art 39(c), the last mentioned being representative of allied amendments elsewhere. Article 21(1) reads as follows: E

'(1) Every citizen of the United Republic is entitled to take part in the government of the country, either directly or through freely chosen representatives, in accordance with procedure provided by or under the law.' F

Article 20(4) states (my translation):

'(4) Without prejudice to the relevant laws, no person shall be compelled to belong to any party or organisation, or for any political party to be refused registration by reason only of its ideology or philosophy.' G

And art 39(c) states (my translation):

'39. No person shall be eligible for election to the office of President of the United Republic unless he - H

(a) ...; (b) ...

(c) is a member of and sponsored by a political party.'

As generally understood the citizen's right to participate in the government of his country implies three considerations: the right to I

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A the franchise, meaning the right to elect his representatives; the right to represent, meaning the right to be elected to law making bodies; and the right to be chosen to political office. These three rights are, in my view, epitomized in the provisions of art 21(1), subject, of course, to the qualifications which expediency may dictate for the exercise of these rights, e.g literacy and age.

But while B accepting the relevancy of such qualifications it has to be admitted in the first place that the concept of basic human rights has a utilitarian aspect to it: to whom are these rights to be useful? Harold Laski (A Grammar of Politics, 1967, at 92) responds thus:

C 'There is only one possible answer. In any State the demands of each citizen for the fulfilment of his best self must be taken as of equal worth; and the utility of a right is therefore its value to all the members of the State. The rights, for instance, of freedom of speech does not mean for those in authority, or for members of some special church or class. Freedom of speech is a right either equally applicable to all citizens without distinction or not applicable at all. D

These remarks are no more applicable in political philosophy than they are in human rights jurisprudence. The matter is brought into focus if we substitute the right to participate in the government of one's country for the freedom of speech. E The proposition would then be that the right to participate in the government of one's country is not reserved for those in authority, or for members of some special class or groups, but it is a right either equally applicable to all citizens F without distinction or not applicable at all. This utilitarian factor is writ large in art 21(1) for it speaks of 'every citizen' being entitled to participate in the government of his country. It could easily have said 'Every member of a political party ...,' but it G did not, and this could not have been without cause. it will be recalled, indeed, that the provision existed in its present terms ever since the one-party era. At that time all political activity had to be conducted under the auspices and control of Chama Cha Mapinduzi, and it could have been argued that this left no room for H independent candidates. It is certainly this notion which was at the base of Mr. Mussa's submission to the effect that the amendments did not take away the right for independent candidates for such right never existed before. The argument is no doubt attractive, but, at least with effect from 1 July, 1992, art 21(1) has to be read in a multi-party and non-party context. That is what I can gather from art 20(4) - previously art 20(2) - which was deliberately rephrased to accommodate both situations. It is I

illogical for a law to provide that no person shall be compelled to belong to a A political party and in the same breath to provide that no person shall run for office except through a political party. If it were the intention of the Legislature to exclude non-party citizens from participating in the government of their country, it could easily have done so vide the same Eighth Constitutional Amendment Act by removing the generality in art 21(1). B

The position, as I see it, is now this: By virtue of art 21(1) every citizen is entitled to participate in the government of the country, and by virtue of the provisions of art 20(4) such citizen does not have to be a member of any political party; yet by C virtue of art 39(c) and others to that effect, no citizen can run for office unless he is a member of and sponsored by a political party. This is intriguing. I am aware that the exercise of the right under art 21(1) has to be 'in accordance with procedure provided by or under the law,' but I think that while participation through a political D party is a procedure, the exercise of the right of participation through a political party only is not a procedure but an issue of substance. The message is: either you belong to a political party or you have no right to participate. There is additionally the

dimension of free elections alluded to in art 21. A citizen may E participate in the government 'either directly or through freely chosen representatives.' It is contrary to every notion of free elections if non-party citizens are compelled to vote for party candidates. In the midst of this unusual dilemma I had to turn to the canons of statutory and constitutional interpretation. F
When the framers of the Constitution declared the fundamental rights in Part III of Chapter One thereof, they did not do so in vain, it must have been with the intention that these rights should be exercisable. It is therefore established that the provisions of the Constitution should always be given a generous and purposive G construction. In AG of Gambia v Jobe (34), at 565, Lord Diplock said:

'A constitution and in particular that part of it which protects and entrenches fundamental rights and freedoms to which all persons in the State are to be entitled, is to be given a generous and purposive construction. H

This echoes what was said earlier in British Coal Corporation v The King (35), to the effect that in interpreting a consistitutent or organic statute the construction most beneficial to widest possible amplitude of its powers must be adopted. And not much later, in I

A James v Commonwealth of Australia (36), at 614 Lord Wright, MR said:

'It is true that a Constitution must not be construed in any narrow and pedantic sense. The words used are necessarily general, and their full import and true meaning can often be B appreciated when considered, as the years go on, in relative to the vicissitudes of fact which from time to time emerge. It is not that the meaning of the word changes, but the changing circumstances illustrate and illuminate the full import of the meaning.'

C This approach is directed principally at resolving difficulties which may be inherent in a single provision. The strategy, according to these authorities, is to approach the provision generously and liberally particularly where it enacts a fundamental right. The case before me takes us a stage further. What happens D when a provision of the constitution enacting a fundamental right appears to be in conflict with another provision in the Constitution? In that case the principle of harmonization has to be called in aid. The principle holds that the entire Constitution has to be read as an integrated whole, no one particular provision destroying the other but each sustaining the other; see Muhammed Nawaz Sharif E (18) at 601. If the balancing act should succeed, the Court is enjoined to give effect to all the contending provisions. Otherwise, the court is enjoined to incline to the realisation of the fundamental rights and may for that purpose disregard even the clear words of a provision if their application would result in gross injustice. Chitaley, at 716, renders the position thus: F

'. . . it must be remembered that the operation of any fundamental right may be excluded by any other Article of the constitution or may be subject to an exception laid down in some other G Article. In such cases it is the duty of the Court to construe the different Articles in the Constitution in such a way as to harmonise them and try to give effect to all the Articles as far as possible and it is only if such reconciliation is not possible, one of the conflicting Articles will have to yield to the other.' H

These propositions are by no means novel but are well known in common law jurisdictions. They rest, above all, on the realisation that it is the fundamental rights which are fundamental and not the restrictions. In the case of Sturat v Crowninshield (37), at 550, Chief Justice Marshall of the Supreme Court of the United States said: I

1995 TLR p67

LUGAKINGIRA J

'Although the spirit of an instrument, especially a Constitution, is to be respected not the less A than its letter, yet the spirit is to be collected chiefly from its words. It would be dangerous in the extreme to infer from extrinsic circumstances that a case for which the words of an instrument expressly provide shall be exempt from its operation. Where words conflict with each other, where the different clauses of an instrument bear upon each other and would be inconsistent unless the natural and common words be varied, construction becomes B necessary, and a departure from the obvious meaning of words is justifiable. But if in any case the plain meaning of a provision, not contradicted by any other provision in the same instrument is to be disregarded, because we believe the framers of that instrument could not intend what they say, it must be one in which the absurdity and injustice of applying the C provision to the case would be so monstrous that all mankind would, without hesitation, unite in rejecting the application.'

In the instant petition, the following factors emerge. First, art 39(c) and allied D amendments are restrictions on the exercise of a fundamental right and not fundamental in themselves. It is the fundamental rights, but not their restrictions, that this Court is enjoined to guard jealously. Secondly, the scheme of our E Constitution contemplates the full exercise of the fundamental rights enacted therein save as they may be limited in terms of the provisions of art 30(2) and art 31(1). Although the amendments pass the test of validity by virtue of the very wide definition of 'alteration' in art 98(2), it is only tenuously that they come within the ambit of art 30(2). Thirdly, the literal application of the amendments could lead to F monstrous and nationally injurious results. It is believed that there are between three and four million people in this country who subscribe to some political party, leaving well over twenty millions a free decision in the government of their country is unjust, monstrous and potentially calamitous. Fourth, it must be said that any G talk of 'parties' at this juncture in the country's history cannot be serious. Apart from Chama cha Mapinduzi whose presence is all pervasive, the rest exist more in name than in practice. The amendments are therefore capable of being abused H to confine the right of governing into the hands of members of a class and to render illusory the emergence of a truly democratic society. I do not wish to believe that that was the intention of the Legislature. Finally, art 21(1) can in fact operate alongside art 39 and allied amendments, without the latter's exclusionary properties, there being nothing strange in having party and independent candidates in any election. I

1995 TLR p68

LUGAKINGIRA J

A For everything I have endeavored to state and notwithstanding the exclusionary elements to that effect in arts 39, 67 and 77 of the Constitution as well as s 39 of the Local Authorities

(Elections) Act 1979, I declare and direct that it shall be lawful for independent candidates, along with candidates sponsored by political parties, to contest presidential, parliamentary and local council elections. This will not apply to the council elections due in a few days. B

We now come to the sixth and final issue. A declaration is sought to the effect that it is unconstitutional for the President to appoint Zanzibaris to head non-union ministries and departments on the Mainland. This matter invites a bit of the union's history. When Tanganyika and Zanzibar united in 1964 the Constitution of the C former was adopted as the interim Constitution of the United Republic, modified as to provide for a separate government for Zanzibar in matters other than those reserved to the union Government. At the same time the Government of D Tanganyika was abolished. The union operated under interim constitutions until the promulgation of the 1977 Constitution.

Article 4(3) of the Constitution provides for the division of governmental functions on the basis of union and non-union matters. Authority in respect of all union E matters as well as non-union matters in and for the Mainland is vested in the Union Government by art 34(1). Likewise all executive power of the United Republic with respect of union matters and with respect to non-union matters in and for the Mainland is vested in the President. He may exercise that power either directly or F through delegation to other persons holding office in the services of the United Republic. The President is also empowered to constitute and abolish offices and, pursuant to the provisions of art 36(2), he has power to appoint persons to offices in the public services of the United Republic subject to the other provisions of the Constitution. In the exercise of the functions of his office the President has G unfettered discretion apart from complying with the provisions of the Constitution and the law. Article 55(1) additionally empowers the President to appoint Ministers who 'shall be responsible for such offices as the President may from time to time . . . establish.' He also has power to appoint Regional Commissioners for regions in the Mainland. Zanzibar retains its internal autonomy in respect of non-union H matters falling on that side. It was argued by Mr Mbezi that the structure of the Constitution points to a dual role for the Union Government, i.e. as a Government responsible for Uniion Matters and as a Government responsible for non-Union Matters for and in I

the Mainland. He also submitted that the division of union from non-union matters A could not have been done without a purpose. In his view non-union matters on the Mainland have to be run by Mainlanders, and the fact that they are constitutionally placed under the Union Government does not amount to their unionisation. He therefore thinks that the appointment of Zanzibaris to run these matters offends art 4(3). Mr Mussa responded by pointing out that no provision in B the Constitution compelled the President not to appoint Zanzibaris to such positions and that it would actually be discriminatory if he did not do so. In his view the exercise of the power of appointment was a matter of policy but not one founded on the Constitution. C

The issue of Zanzibaris in 'Mainland' ministries is presently a matter of considerable interest, and seems to derive more drive from the polarised political situation which culminated in the ill-fated parliamentary motion for a government of Tanganyika. But sentiments apart, one would

certainly wish to know the jurisdical D position of non-union matters in and for the Mainland. The dualism factor asserted by Mr Mbezi was recognised and articulated by the Court of Appeal in Haji v Nungu & Anor (38), where Chief Justice Nyalali further stated (at p 231) that in the basic structure of the Constitution there are 'matters which concern E exclusively that area which before the Union constituted what was then known as Tanganyika ...' He went on to say that 'These matters under the scheme of the Constitution fall under the exclusive domain of the Government of the United Republic. The Revolutionary Government of Zanzibar has no jurisdiction over F these matters.' Of course that case was concerned with a different matter - the jurisdiction of the High Court of the United Republic in election petitions - yet, even with that reference to the exclusive domain of the Government of the United Republic over Tanganyika matters, I cannot read a suggestion of the unionization G of those matters. There are various types of constitutions which are classified as federal and ours could carry that appellation in the absence of a standard or ideal type of a federal constitution. It is not uncommon for such constitutions to enumerate the areas reserved to the federated states, leaving the rest to the federal or central government. The founders of our Union could easily have done H that. They could have enumerated the spheres in which the Zanzibar Government would exercise power and leave the rest to the Union Government. In that case the philosophy of changu, changu; chako, chetu (mine is mine; yours is ours) would have made considerable sense, for everything in and I

A for the Mainland would have then been a union matter. But that was carefully avoided. Instead the Constitution enumerates union matters only and expressly declares the rest to be non-union; and this is so, according to art 4(3), 'For the purpose of the more efficient discharge of public affairs . . . and for the effective division of functions in relation to those affairs . . .' I think, with respect, there is B reason to insist on the significance of the division. It occurs to me, that the fact of the non-union matters on the Mainland side being under the Union Government does not derogate from their character. They remain 'matters which concern C exclusively that area which before the Union constituted what was then known as Tanganyika, and is presently referred to under the constitution as Tanzania Mainland.' to quote the Chief Justice again. And since the Constitution also recognises the necessity 'for the effective division of functions' in the discharge of public affairs in the United Republic, the appointment of Zanzibaris to positions of authority in non-union matters in the Mainland could have the effect of blurring that division. D

That said, however, it is difficult to draw the inference of unconstitutionality, which the Court was called upon to draw, in relation to those appointments. The E provisions to which I have referred, notably art 36(2) and art 55(1), do not limit the President in his choice of officers or Ministers or in their disposition. The furthest we can go is to fall back to the words 'subject to the other provisions of this F Constitution' in art 36(2) and this would lead to the division of union and non-union matters in art 4(3). It can then be suggested that to keep the division effective there is an implied invitation to keep Tanganyika matters Tanganyikan. A breach of the

Constitution, however, is such a grave and serious affair that it cannot be arrived at by mere inferences, however attractive and I apprehend that this would require proof beyond reasonable doubt. I have therefore not found myself in a position to make the declaration sought and I desist from doing so. G

Finally, each party prayed for costs. I cannot find my way to award any. In the first place the record suggests that this was a legal aid case and I don't quite see how the question of costs arises. Additionally, I think this was a balanced case where both sides won and lost. The parties will therefore bear their respective costs. H

1995 TLR p71

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[zRPz]BHUPENDA P. OZA v NATIONAL HOUSING CORPORATION 1995 TLR 71 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Mwaikasu J

CIVIL APPEAL NO. 32 OF 1993 B

November 3, 1994

Flynote

Rent Restriction - Enforcement order - Enforcement order is preferred without notice having been served on the other party - Effect thereof - Section 48(1) of the Rent Restriction Act 1984. C

-Headnote

This was an appeal against the enforcement order of the Resident Magistrates' Court in Dar es Salaam in execution of an eviction order made by the Dar es Salaam Regional Housing Tribunal without the respondent being served with a notice as required by s 48(1) of the Rent Restrictions Act 1984. D

Held:

(i) Before a Resident Magistrate's Court may take any action to enforce the determination or order of a Regional Housing Tribunal, the party intending E to enforce the same must first file with the court a duly authenticated copy of the determination or order of the tribunal, and second, serve the tribunal with notice of such filing of the determination or order of the tribunal in the court

(ii) Once the two steps referred to above have been complied with the court F need not wait for the proceedings of the tribunal before taking necessary measures for the enforcement of the determination how or order of the tribunal.

Case Infomation

Order accordingly

Case referred to: G

(1) Ismailia Council of Eastern Tanzania v. NHC, Civil Revision No.12 of 1994, HC-DSM (Unreported)

Rweyemamu, for the appellant
[zJDz]Judgment
Mwaikasu, J.:
This is an appeal by Bhupendra P Oza, against the enforcement order of the lower court in RM Misc. Case No 141 of 1993, in execution of an eviction order made by the Regional Housing Tribunal of Dar es Salaam, in Application No 423 of 1988. H
1995 TLR p72
MWAIKASU J
A The application for the execution of the eviction order made by the Regional Housing Tribunal was filed by the Respondent, the National Housing Corporation, and admitted by the lower court on 14 May 1993. Whereupon on 17 May 1993, the lower court made the following order:
B 'Upon the application for execution of decree filed here in by the Decree Holder, Let the Eviction to be is issued as prayed'
such application for the execution of the eviction order issued by the Regional C Housing Tribunal does not indicate that a notice of the same had been served upon the Regional Housing Tribunal, as required under s 48(1) of the Rent Restriction Act 1984.
That then is the subject of complaint by the tespondent which has engineered this appeal, it being contended by Mr Novatus Rweyemamu, learned counsel for the D appellant that failure by the respondent to serve notice of such filing of the order of the Regional Housing Tribunal with the lower court for execution rendered the ensuing enforcement order by the lower court, a nullity.
It is the submission by the learned counsel for the appellant that service of the E notice prescribed by s 48 of the Rent Restriction Act is a condition precedent for the enforcement as a decree of the determination or order of a Regional Housing Tribunal. So that failure by the respondent to serve the notice aforesaid on the Tribunal above mentioned, rendered the enforcement of the determination of the Tribunal incompetent, null and void. F
It is further the submission by the learned counsel for the appellant that the requirement of the service of the notice of filing on the Tribunal and the transmission by the Tribunal to the RM's court of the record of proceedings of the G said Tribunal is intended to make the RM's court aware of the contents of the Tribunal's record of proceedings, so that the RM's court may take certain matters in the said record into account before exercising its discretion to enforce the Tribunal's determination order as a decree. Accordingly, on the above grounds it has been prayed that the appeal be allowed setting aside the eviction order served upon the appellant, with costs. H
In reply to such submission, it has been submitted for the respondent that the lower court acted properly when it enforced the order/decree of the Regional Housing Tribunal immediately after the same had been filed with the court, on the ground that under s 48 of the Rent Restriction Act 1984, which gives power to the RM's court to enforce the determination/orders of the Regional Housing Tribunal there is I
1995 TLR p73

MWAIKASU J

nothing about the period after which enforcement should be done. It has further A been contended for the respondent without any supportive document that the respondent, after filing the application for execution did serve notice of such filing to the Regional Housing Tribunal as required by law and that that is the reason why the court proceeded to evict the appellant from the suit promises. This court B has then been referred to the decision of this court in the case of Ismailia Council of Eastern Tanzania v NHC (1) where it was held that the filing of proceedings of the Regional Housing Tribunal is not mandatory and that the court was right in ordering execution without copies of proceedings. It was therefore been prayed that this appeal be dismissed with costs. C

In reply to such submissions for the respondent learned counsel for the appellant has submitted, inter alia, that the decision in the revision case referred to above was distinguishable from the instant case, in that whereas in the instant case, the issue for determination is failure by the respondent to serve notice to the Tribunal D of his filing of the authenticated copy of the Regional Housing Tribunal, with the RM's court, in the revision case cited above the issue was the failure of the Tribunal to transmit its record of its proceedings in respect of the order the subject of enforcement by the RM's court. E

As at the centre of this appeal is the controversy as to the import of the provision under s 48 of the Rent Restriction Act 1984, I propose to reproduce it in extenso for ease of reference. That section provides: F

'48 - (1) A duly authenticated copy of the determination or order of the tribunal may be filed in the court by any party to the proceedings and on such order being served in the tribunal, by any party filing the same, such determination or order may be enforced as a decree of the court. G

(2) In any case in which such determination or order has been filed by a party, the tribunal shall, on being served with notice of the filing of such determination or order transmit to the court its record of the proceedings before it and the same shall be filed by the court along with the certified copy of the determination or order.' (Emphasis supplied). H

In my judgment, it is my considered opinion that while I have no quarrel with the soundness of the decision of this court in the Ismailia's revision case cited above in the light of the facts of that case, in the instant case and in the light of the facts before the lower court and the provision of the law cited above, the contention by the I

A learned counsel for the appellant appears to be sound. I am clearly of the view that the filing of a duly authenticated copy of the determination or order of the Regional Housing Tribunal with the RM's court, and the notification of the same to the Regional Housing Tribunal. by the party so filing such tribunal's determination or order for enforcement by the RM's court, are two conditions precedent, to the B action by the RM's court to enforce such tribunal's determination/order. This put in simple terms before in RM's court may take any action to enforce the determination or order of a Regional Housing Tribunal, the party intending to C

enforce the same must, first, file with the court a duly authenticated copy of the determination or order of the tribunal and second, serve the tribunal with notice of such filing of the determination or order of the tribunal in the court. Without the two steps having been accomplished, the RM's court would be incompetent to embark on the enforcement of the determination or order of the Tribunal before it. D

I do however, entirely agree with the respondent, that once the two steps referred to above have been accomplished, the RM's court need not, as was also held in the Ismailia's case cited above, wait for the proceedings of the tribunal before taking necessary measures for the enforcement of the determination or order of the tribunal. E

Now while it is the contention and submission of the learned counsel for the appellant that when the lower court acted upon the respondent's application before it to have the tribunal's determination enforced, no notice of the filing of such application with the court was served upon the tribunal. In its submission, the F respondent corporation has contended that such notice was served upon the tribunal. Apparently no evidence of service of such notice is to be found in the record of the lower court, nor is there anything to substantiate such claim by the respondent certainly as the respondent was the one in the best position to know G how such service was effected, the respondent corporation was duly bound to furnish this court with documentary evidence to substantiate such claim.

This court is therefore inclined to go by the argument for the appellant that the respondent did, in fact, fail to serve the tribunal with notice of the filing by the H respondent of the tribunal's determination with the lower court. Thus, as observed earlier, in the circumstances the lower court was incompetent to enforce the tribunals determination/order that led to the eviction of the appellant from the suit premises.

This court notes, however, that in the proceedings before the Regional Housing Tribunal that led to the eviction order being I

made against the appellant, on appeal by the appellant to the Housing Appeals A Tribunal against such decision the appellant lost and there appears no intention to appeal against the decision of the Housing Appeals Tribunal. It follows therefore that the eviction order made by the Regional Housing Tribunal against the appellant still stands. B

The effect therefore of this judgment is to allow the appeal with costs, quashing the enforcement proceedings of the lower court with liberty for the respondent to file afresh with the lower court such determination, order of the tribunal for enforcement in full compliance, with the requirements of s 48 of the Rent C Restriction Act, 1984, that is to say with due notice to the tribunal of such filing by the respondent. D

E

[zRPz]SALIMA VUAI FOUM v REGISTRAR OF COOPERATIVE SOCIETIES AND THREE OTHERS 1995 TLR 75 (CA)

Court Court of Appeal of Tanzania - Zanzibar
Judge Omar JJA, Ramadhani JJA & Lubuva JJA

CIVIL APPEAL NO. 36 OF 1994 F
November 28, 1994
(From the decision of the High Court of Zanzibar, Hamid, C.J.) G
Flynote
Civil Practice and Procedure - Affidavits - Affidavit lacking verification and not disclosing source of deponent's knowledge and information - Whether valid.
-Headnote
The appellant filed a chamber application in the High Court of Zanzibar. At the H hearing of the application the Respondents raised a preliminary objection regarding the validity of the affidavit supporting the application. The objection was allowed, the High Court holding that the affidavit was incompetent since it had no verification and did not reveal the source of the deponent's information and knowledge of some of the facts stated therein. The appellant appealed to the Court of Appeal. I
1995 TLR p76
LUBUVA JA
A Held:

(i) Where an affidavit is made on information, it should not be acted upon by any court unless the sources of information are specified;

(ii) As nowhere in the affidavit, either as a whole or in any particular paragraph, is it stated that the facts deposed to or any of them, and if so which ones, are true to the deponent's knowledge, or as advised by his advocate, or are true to his information and belief, the affidavit was defective and incompetent, and was properly rejected by the Chief Justice. B
Case Infomation
Appeal dismissed
C Cases referred to:
(1) Mtale v. January Kapembwa [1976] LRT, n.7
(2) Standard Goods Incorporation Ltd v. Harakhchand Nathu and Company [1950] 17 EACA 99.
D (3) Bombay Flour Mill v. Hunibhai M. Patel [1962] EA 803.
A. Patel, for the appellant
U.H. Khalfani, for the first respondent
Mbwezeleni, for the second, third and fourth and fourth respondents
[zJDz]Judgment
E Lubuva, J.A., delivered the following considered judgment of the court:
Before the High Court of Zanzibar, the appellant filed a chamber application seeking to move the court to order the first respondent, the Registrar of F Co-operative Societies in Zanzibar, to make available to the appellant the record of the 'Maendeleo Stores' Co-operative Society. The

appellant had been a member and the secretary of the said Co-operative Society whose registration number was 55 of 1980. The Chamber application, was supported by an affidavit which was sworn to by the appellant as the applicant. G

In the course of hearing the Chamber application which was filed by Mr Ajar Patel, learned counsel for the appellant, a preliminary objection was raised against the validity of the appellant's affidavit by Mr Mbwezeleni, learned counsel for the H second, third and fourth respondents supported by Mr Uhuru Hemed Khalfani learned State Attorney for the first respondent, the Registrar of Co-operative Societies. Upholding the objection, the learned Chief Justice of Zanzibar held the appellant's affidavit as incompetent since it was without verification and did not reveal the source of the deponent's information and knowledge I

of some of the facts stated in the affidavit. Consequently, the Chamber application was dismissed. A

Dissatisfied with the order of the dismissal of the Chamber application, the appellant has lodged this appeal. The memorandum of appeal filed by Mr A Patel learned counsel for the appellant contains six grounds of appeal out of which we think one essential point emerges. That is, that the learned Chief Justice erred in B holding that the affidavit attached to the Chamber application was defective in law for not disclosing the source of the deponent's information and for want of verification clause. At the hearing of the appeal, Mr Uhuru Hemed Khalfani learned C State Attorney for the first respondent took a preliminary objection that the appeal was incompetent in that the requirement of Rule 90(1) of the Court of Appeal Rules, 1979 were not complied with. He had served the notice for the objection under Rule 100 of the Court's Rules. It was Mr Khalfani's contention that D though the copies of the memorandum of appeal were filed at the Court's Zanzibar sub-registry on 26 June 1994, the first respondent was served with the memorandum of appeal on 21 November 1994 which was not within the prescribed time under the Court's Rules. He urged the court to dismiss the appeal. However, when it was brought to his attention by Mr Patel, learned counsel, that E the application of Rule 90(1) is subject to Rule 79 being complied with by the respondent to serve the appellant with his (respondent) address after receiving the notice of appeal by the appellant, Mr Khalfani learned State Attorney, withdrew the F preliminary objection. The appeal was thus proceeded with on its merits.

For the appellant, Mr Ajar Patel, learned counsel, submitted that the learned Chief Justice could not be faulted in his holding that the appellant's affidavit was incompetent as it lacked verification and did not disclose the source of the deponent's knowledge and information. However, he strongly criticized the learned G Chief Justice for not exercising the discretion to require the dependent to amend the affidavit so as to disclose the source of information. If we understood Mr Patel H correctly, he was of the view that in the interest of justice the learned Chief Justice should have exercised the discretion vested in him to order for the amendment of the affidavit. Furthermore, it was Mr Patel's submission that as the respondents did not file a counter affidavit to challenge the appellant's affidavit, it was an admission on the part of the

respondents of the truthfulness of what was stated in the appellant's affidavit. For this proposition Mr I

1995 TLR p78

LUBUVA JA

A Patel, learned counsel, did not have any specific authority on the point but had vague recollection of this court's decision in some case in the Mwanza Registry.

For the second, third and fourth respondents and on behalf of Mr Khalfani for the first respondent, Mr Mbwezeleni made brief but pertinent submissions. First, Mr B Mbwezeleni contended that as a matter of law, the learned Chief Justice properly rejected the affidavit of the appellant which was incompetent due to lack of verification and the non-specification of the source of information by the deponent. Mr Mbwezeleni referred us to the case of Mtale v January Kapembwa (1). C Secondly, Mr Mbwezeleni submitted that as the affidavit was incompetent, the appellant was not bound to react to it and that that could not be taken as an admission of truth in what was stated in the affidavit of the appellant. He urged the court to dismiss the appeal.

D As rightly pointed out by Mr Mbwezeleni, learned counsel for the appellants, we think the only issue for consideration in this appeal is the validity of the affidavit deponed by the appellant. From the record as well as the submission of both counsel, it is an undisputed fact that the appellant's affidavit which was an essential part of the appellant's application before the learned Chief Justice had E neither the verification clause nor did it specify the source of the information deponed by the appellant. To our minds, the legal position regarding affidavits which are without verification or specification of source of information is crystal clear. From case law, numerous cases have been decided by this court and the Court of Appeal for Eastern Africa on this point. F

The principle is that where an affidavit is made on an information, it should not be acted upon by any court unless the sources of the information are specified. This was reiterated by the Court of Appeal for Eastern Africa in the case of Standard G Goods Incorporation Ltd v Harakhchand Nathu & Co (2). Again, in the case of Bombay Flour Mill v Hunibhai M Patel (3), it was held that as the affidavit did not state the deponent's means of knowledge or his source's of information and belief, the affidavit was defective and incompetent, the application based on the affidavit was dismissed. Likewise, in the case of Mtale v January Kapembwa (1), which H was cited by Mr Mbwezeleni, the High Court of Tanzania correctly in our view, applied the above principle.

Applying this principle to the instant case, we have no hesitation in agreeing with Mr Mbwezeleni, learned counsel for the appellant, that the affidavit in question being defective and in- I

1995 TLR p79

LUBUVA JA

competent was properly rejected by the learned Chief Justice of Zanzibar. As A already indicated, affidavits and what matters which affidavits should be confined are governed by law. In that case, even if we were to accept Mr Patel's submission that the respondents' failure to counter the appellant's affidavit amounted to acceptance of the truthfulness of what the

appellant had stated in the affidavit, still we are with respect, unable to appreciate how that would validate such clear and B unambiguous legal requirement in an affidavit. Furthermore, as Mr Patel correctly conceded, it being a matter of discretion for the court to require the appellant (applicant) to amend the affidavit so as to specify the sources of information deposed to, we can hardly fault the learned Chief Justice for exercising C the discretion in the way it was done. We cannot by any stretch of imagination say that the exercise of the discretion was done wrongly. On the whole, we are satisfied that in the appellant's affidavit it is nowhere stated, in respect of the D affidavit as a whole or of any paragraph or allegation in it, that the facts deposed to, or any and if so which of them, are true to the deponent's knowledge, or as advised by his advocate, or are true to the best of his information and belief. For that reason, we are with respect, in agreement with Mr Mbwezeleni, learned E counsel for the appellant that the affidavit being defective and incompetent was properly rejected. We are thus of the settled view that the learned Chief Justice was entitled to dismiss the application which was based on the strength of the affidavit.

Accordingly, we dismiss the appeal with costs. F

1995 TLR p80

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[zRPz]ATTORNEY GENERAL v LOHAY AKONAAY AND JOSEPH LOHAY 1995 TLR 80 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge B Nyalali CJ, Makame JJA and Kisanga JJA

CIVIL APPEAL NO. 31 OF 1994.

December 21, 1994

(From the Judgment of the High Court of Tanzania at Arusha, Munuo, J.) C

Flynote

Constitutional Law - Fundamental rights - Right to property - Whether customary rights in land are property rights. D

Basic rights under the Constitution - Right to property protection against deprivation of property without fair compensation - Whether compensation payable where there are no unexhausted improvements - The Nyerere doctrine of land value. E

Basic rights - Right to property - Extinction of customary rights in land - Whether discriminatory - Constitution of the United Republic of Tanzania Articles 13(5) and 24(1) and Regulation of Land Tenure (Established Villages) Act 1992. F

Constitutional Law - Separation of powers - Act of Parliament ousts jurisdiction of the courts - Whether constitutional - Constitution of the United Republic of Tanzania, Articles 4 and 13(6)(a) and Regulation of Land Tenure (Established Villages) Act, 1992.

Constitutional Law - Supremacy of Constitution over Acts of Parliament - Some sections of Acts of Parliament violating Constitution - Whether whole Act or only offending sections are invalid - Regulation of Land Tenure (Established Villages) Act, 1992. G

Land Law - Customary rights in land - Extinction - Whether extinction of customary rights amounts to acquisition.

-Headnote

H The respondents, father and son, had acquired land rights under customary law recognized as deemed rights of occupancy under section 2 of the Land Ordinance (Cap.113) over 20 acres in Mbulu District, Arusha Region, which they had cleared in 1943. They occupied and used the land until they were dispossessed during 'Operation Vijiji' under the Villages and Ujamaa Villages Act, 1975. They successefully sued for the recovery of that land and regained possession of it in 1990 under a Court decree. An appeal against that judgment was still pending in the I

1995 TLR p81

High Court when the Regulation of Land Tenure (Established Villages) Act, 1992, A was passed. The effect of this Act was to extinguish customary rights in land acquired before 'operation Vijiji' in 'an established village', to prohibit the right to compensation for such extinction, to oust the jurisdiction of the courts, terminate relevant court proceedings and prohibit the enforcement of any relevant court decision. Proceedings under the 1992 Act were to be instituted only in local land tribunals. The respondents then petitioned the High Court alleging breaches of B their fundamental rights and obtained a declaration from the High Court that the 1992 Act was invalid for inconsistency with the Constitution in that its provisions violated the petitioners' rights of equality before the law, of freedom from deprivation of property without fair compensation, and of access to the courts to protect their rights. The Court ordered the offending Act to be struck out of the statute book. The Attorney General appealed to the Court of Appeal on the grounds that these holdings were erroneous, that customary land rights were not forms of property protected by the Constitution and that although certain sections of the 1992 Act violated the Constitution the whole Act could not be invalidated on that ground alone.

Held:

(i) Customary or deemed rights in land, though by their nature are nothing but rights to occupy and use the land, are nevertheless real property protected by the provisions of Article 24 of the Constitution of the United Republic of Tanzania and their deprivation of a customary or deemed right of occupancy without fair compensation is prohibited by the Constitution;

(ii) Fair compensation is not confined to unexhausted improvements; where there are no unexhausted improvements but some effort has been put into the land by the occupier, that occupier becomes entitled to protection under Article 24(2) of the Constitution and fair compensation is payable for deprivation of property and land;

(iii) Sections 3 and 4 of the 1992 Act which provide for extinction of customary rights in land but prohibit the payment of compensation with the implicit exception of unexhausted improvements only are violative of Article 24(1) of the Constitution and are null and void;

(iv) The provisions of the 1992 Act relating to extinction of customary rights were not applicable to the respondents because their customary rights in land had been extinguished before the 1992 Act and before the basic human rights under the constitution became

enforceable in 1988 by virtue of section 5(2) of the Constitution (Consequential, Transitional and Temporary Provisions) Act, 1984;

(v) Act No 22 of 1992 cannot be construed to be discriminatory within the meaning of Article 13(5) of the Constitution because that Act was passed to deal with a problem peculiar to rural areas;

(vi) The act of extinguishing the relevant customary or deemed rights of occupancy did not amount to acquisition of such rights;

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A (vii) Wherever the Constitution establishes or permits the establishment of any other institution or body with executive or legislative or judicial power, such institution or body is meant to function not in lieu of or in derogation of the three central pillars of the state, but only in aid of and subordinate to those pillars;

B (viii) Any purported ouster of jurisdiction of the ordinary courts to deal with any justiciable dispute is unconstitutional;

(ix) A court has inherent power to make a consequantial order striking out an invalid statute from the statute book;

(x) Where the unconstitutional provisions of a statute may be severed leaving the remainder of the statute functioning then the court should uphold the remainder of the statute and invalidate only the offending provisions; C

(xi) With regard to s 5(1) and (2) of the 1992 Act, which prohibits access to the courts or tribunal, terminates proceedings pending in Court or tribunal and prohibits enforcement of decisions of any court or tribunal concerning land disputes falling within the 1992 Act that entire section is unconstitutional and therefore null and void as it encroaches upon the sphere of the judicature contrary to Article 4 of the Constitution and denies an aggrieved party remedy before an impartial tribunal contrary to Article 13(6)(a) of the same Constitution. D

Case Infomation

E Appeal allowed in part

Cases referred to:

1. Amodu Tijan v. The Secretary Southern Nigeria [1921] 2 AC 399.
2. Mtoro bin Mwamba v. The Attorney General (1953) 20 EACA 108.
3. Hewlett v. Minister of Finance [1981] ZLR 571

F 4. Shah v. Attorney General (No.2) [1970] EA 523

5. Attorney General of Alberta v. Attorney General of Canada [1947] AC 503.

F. Mrema, (Deputy Attorney General) and S. Salula (State Attorney), for the appellant G

Lobulu and Sang'ka, for the respondents.

[zJDz]Judgment

Nyalali, C.J., delivered the following considered judgment of the court:

H This case clearly demonstrates how an understanding of our country's past is crucial to a better understanding of our present, and why it is important while understanding our past, to avoid living in that past. The respondents, namely, Lohay Akonaay and Loseph Lohay are father

and son, living in the village of Kambi ya Simba, Mbulumbulu Ward, Mbulu District, in Arusha Region. In January 1987 they successfully instituted a suit in the court of the Resident I
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Magistrate for Arusha Region for recovery of a piece of land held under customary A law. An eviction order was subsequently issued for eviction of the judgment debtors and the respondents were given possession of the piece of land in question. There is currently an appeal pending in the High Court at Arusha against the judgment of the trial court. This is Arusha High Court Civil Appeal No 6 of 1991. B While this appeal was pending, a new law, which came into force on 28 December 1992, was enacted by Parliament, declaring the extinction of customary rights in land, prohibiting the payment of compensation for such extinction, ousting the jurisdiction of the courts, terminating proceedings pending in the courts, and prohibiting the enforcement of any court decision or decree concerning matters in respect of which jurisdiction was ousted. The law also C established, inter alia, a tribunal with exclusive jurisdiction to deal with the matters taken out of the jurisdiction of the courts. This new law is the Regulation of Land Tenure (Established Villages) Act, 1992, Act No 22 of 1992, hereinafter called Act No 22 of 1992. D
Aggrieved by this new law, the respondents petitioned against the Attorney-General in the High Court, under arts 30(3) and 26(2) of the Constitution of the United Republic of Tanzania, for a declaration to the effect that the new law is unconstitutional and consequently null and void. The High Court, Munuo, J, E granted the petition and order the new law struck off the statute book. The Attorney-General was aggrieved by the judgment and order of the High Court, hence he sought and obtained leave to appeal to this Court. Mr Felix Mrema, the learned Deputy Attorney-General, assisted by Mr Sasi Salula, State Attorney, appeared for the Attorney-General, where Messrs Lobulu and Sang'ka, learned F advocates, appeared for the respondents.
From the proceedings in this court and the court below, it is apparent that there is no dispute between the parties that during the colonial days, the respondents G acquired a piece of land under customary law. Between 1970 and 1977 there was a country-wide operation undertaken in the rural areas by the Government and the ruling party, to move and settle the majority of the scattered rural population into villages on the mainland of Tanzania. One such village was Kambi ya Simba H village, where the respondents reside. During this exercise, commonly referred to as Operation Vijiji, there was wide-spread re-allocation of land between the villagers concerned. Among those affected by the operation were the respondents, who were moved away from the land they had acquired during the colonial days to another piece of land within the same I
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A village. The respondents were apparently not satisfied with this reallocation and it was for the purpose of recovering their original piece of land that they instituted the legal action already mentioned. Before the case was concluded in 1989, subsidiary legislation was made by the appropriate Minister under the Land B Development (Specified Areas) Regulations, 1936 read together with the Rural Lands (Planning and Utilization) Act, 1973, Act No 14 of 1973

extinguishing all customary rights in land in 92 villages listed in a schedule. This is the Extinction of Customary Land Right Order, 1987 published as Government Notice No 83 of 13 February 1987. The order vested the land concerned in the respective District C Councils having jurisdiction over the area where the land is situated. The respondents' village is listed as Number 22 in that schedule. All the 92 villages listed under the Order, including the respondents' village, are in areas within Arusha Region.

D The Memorandum of appeal submitted to us for the appellant contains nine grounds of appeal, two of which, that is grounds numbers 8 and 9, were abandoned in the course of hearing the appeal. The remaining seven grounds of appeal read as follows:

E 1. That the Honourable Trial Judge erred in fact and law in holding that a deemed Right of Occupancy as defined in s 2 of the Land Ordinance Cap 113 is 'property' for the purposes of art 24(1) of the Constitution of the United Republic of Tanzania 1977 and as such its deprivation is unconstitutional.

F 2. That the Honourable Trial Judge erred in law and fact in holding that s 4 of the Regulation of Land Tenure (Established Villages) Act, 1992, precludes compensation for unexhausted improvements.

3. That the Honourable Trial Judge erred in law and fact in holding that any G statutory provision ousting the jurisdiction of the courts is contrary to the Constitution of the United Republic of Tanzania.

4. That the Honourable Trial Judge erred in law by holding that the whole of the Regulation of Land Tenure (Established Villages) Act 1992 is unconstitutional. H

5. That the Honourable Trial Judge erred in law and fact in holding that the Regulation of Land Tenure (Established Villages) Act 1992 did acquire the Respondents' land and re-allocated the same to other people and in holding that the Act was discriminatory.

6. That having declared the Regulation of Land Tenure (Estab- I

lished Villages) Act 1992 unconstitutional, the Honourable Judge erred in law A in proceeding to strike it down.

7. The Honourable Trial Judge erred in fact by quoting and considering a wrong and non-existing section of the law.

The respondents on their part submitted two notices before the hearing of the B appeal. The first is a Notice of Motion purportedly under Rule 3 of the Tanzania court of Appeal Rules, 1979, and the second, is a Notice of Grounds for affirming the decision in terms of Rule 93 of the same. The Notice of Motion sought to have the court strike out the grounds of appeal numbers 1, 5, 8 and 9. After hearing both C sides, we were satisfied that the procedure adopted by the respondents was contrary to rules 45 and 55 which require such an application to be made before a single judge. We therefore ordered the Notice of Motion to be struck off the record.

As to the Notice of Grounds for affirming the decision of the High Court, it reads as follows: D

1. As the appellant had not pleaded in his reply to the petition facts or points of law showing controversy, the court ought to have held that the petition stands unopposed. E

2. Since the respondents have a court decree in their favour, the Legislature cannot nullify the said decree as it is against public policy and against the Constitution of Tanzania.
3. As the respondents have improved the land, they are by that reason alone entitled to compensation in the manner stipulated in the Constitution and that compensation is payable before their rights in land could be extinguished. F
4. Possession and use of land constitute 'property' capable of protection under the Constitution of Tanzania. Act No 22 of 1992 is therefore unconstitutional to the extent that it seeks to deny compensation for loss of use; it denies right to be heard before extinction of the right.
5. Operation Vijiji gave no person a right to occupy or use somebody else's land, hence no rights could have been acquired as a result of that 'operation'. G
6. The victims of Operation Vijiji are entitled to reparations, The Constitution cannot therefore be interpreted to worsen their plight. H
7. The land is the respondents' only means to sustain life. Their rights therein cannot therefore be extinguished or acquired in the manner the Legislature seeks to do without violating the respondents' constitutional right to life.
For purposes of clarity, we are going to deal with the grounds of appeal one by one, and in the process, take into account the I

A grounds submitted by the respondents for affirming the decision wherever they are relevant to our decision.
Ground number one raises an issue which has far-reaching consequences to the majority of the people of this country, who depend on land for their livelihood. Article 24 of the Constitution of the United Republic of Tanzania recognizes the B right of every person in Tanzania to acquire and own property and to have such property protected. Sub-article (2) of that provision prohibits the forfeiture or expropriation of such property without fair compensation. It is the contention of the Attorney-General, as eloquently articulated before us by Mr Felix Mrema, Deputy C Attorney-General, that a 'right of occupancy' which includes customary rights in land as defined under s 2 of the Land Ordinance, Cap 113 of the Revised Laws of Tanzania Mainland, is not property within the meaning of art 24 of the Constitution and is therefore not protected by the Constitution. The Deputy Attorney-General D cited a number of authorities, including the case of Amodu Tijan v The Secretary Southern Nigeria (1) and the case of Mtoro Bin Mwamba v The Attorney-General (2), the latter arising from our own jurisdiction. The effect of these authorities is E that customary rights in land are by their nature not rights of ownership of land, but rights to use or occupy land, the ownership of which is vested in the community or communal authority. The Deputy Attorney-General also contended to the effect that the express words of the Constitution under art 24 makes the right to property, 'subject to the relevant laws of the land.' F
Mr Lobulu for the respondents has countered Mr Mrema's contention by submitting to the effect that whatever the nature of customary rights in land, such rights have every characteristic of

property, as commonly known, and therefore fall within the scope of art 24 of the Constitution. He cited a number of authorities in support of G that position, including the Zimbabwe case of Hewlett v Minister of Finance (3), and the cases of Shah v Attorney-General (2), and the scholarly article by Thomas Allen, Lecturer in Law, University of Newcastle, published in the International and Comparative Law Quarterly, vol 42, July 1993 on H 'Commonwealth Constitutions and the right not to be deprived of property'.

Undoubtedly the learned Trial Judge, appears to have been of the view that customary or deemed rights of occupancy are property within the scope of art 24 of the Constitution when she stated in her judgment: I

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'I have already noted earlier on that the petitioners legally possess the suit land under A customary land tenure under s 2 of the Land Ordinance Cap 113. They have not in this application sought any special status, rights or privileges and the court has not conferred any on the petitioners. Like all other law abiding citizens of this country, the petitioners are equally entitled to basic human rights including the right to possess the deemed rights of occupancy they lawfully acquired pursuant to art 24(1) of the Constitution and s 2 of the Land Ordinance, B Cap 113.'

Is the Trial Judge correct? We have considered this momentous issue with the judicial care it deserves. We realize that if the Deputy Attorney-General is correct, C then most of the inhabitants of Tanzania mainland are no better than squatters in their own country. It is a serious proposition. Of course if that is the correct position in law, it is our duty to agree with the Deputy Attorney-General, without fear or favour, after closely examining the relevant law and the principles underlying it. D

In order to ascertain the correct legal position, we have had to look at the historical background of the written law of land tenure on the mainland of Tanzania, since the establishment of British Rule. This exercise has been most helpful in giving us E an understanding of the nature of rights or interests in land on the mainland of Tanzania. This historical background shows that the overriding legal concern of the British authorities, no doubt under the influence of the Mandate of the League of Nations and subsequently of the Trusteeship Council, with regard to land, was F to safeguard, protect, and not to derogate from, the rights in land of the indigenous inhabitants. This is apparent in the Preamble to what was then known as the Land Tenure Ordinance, Cap 113 which came into force on 26 January, 1923. The Preamble reads: G

'Whereas it is expedient that the existing customary rights of the natives of the Tanganyika Territory to use and enjoy the land of the Territory and the natural fruits thereof in sufficient quantity to enable them to provide for the sustenance of themselves their families and their posterity should be assured, protected and preserved; H

And whereas it is expedient that the rights and obligations of the Government in regard to the whole of the lands within the Territory and also the rights and obligations of cultivators or other persons claiming to have an interest in such lands should be defined by law. Be it

therefore enacted by the Governor and Commander-in-Chief of the Tanganyika Territory as follows....' I

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A It is well known that after a series of minor amendments over a period of time, the Land Tenure Ordinance assumed its present title and form as the Land Ordinance, Cap 113. Its basic features remain the same up to now. One of the basic features is that all land is declared to be public land and is vested in the governing authority on trust for the benefit of the indigenous inhabitants of this country. This appears in s 3 and 4 of the Ordinance. B

The underlying principle of assuring, protecting and preserving customary rights in land is also reflected under art 8 of the Trusteeship Agreement, under which the mainland of Tanzania was entrusted by the United Nations to the British Government. Article 8 reads: C

'In framing laws relating to the holding or transfer of land and natural resources, the Administering Authority shall take into consideration native laws and customs, and shall respect the rights and safeguard the interests, both present and future, of the native D population. No native land or natural resources may be transferred except between natives, save with the previous consent of the competent public authority. No real rights over native land or natural resources in favour of non-natives may be created except with the same consent.' E

With this background in mind, can it be said that the customary or deemed rights of occupancy recognized under the Land Ordinance are not property qualifying for protection under art 24 of the Constitution? The Deputy Attorney-General has F submitted to the effect that the customary or deemed rights of occupancy, though in ordinary parlance may be regarded as property, are not constitutional property within the scope of art 24 because they lack the minimum characteristics of property as outlined by Thomas Allen in his article earlier mentioned where he states: G

'The precise content of the bundle of rights varies between legal systems, but nonetheless it is applied throughout the Commonwealth. At a minimum, the bundle has been taken to include the right to exclude others from the thing owned, the right to use or receive income from it, and the right to transfer to others. According to the majority of Commonwealth cases, an individual H has property once he or she has a sufficient quantity of these rights in a thing. What is 'sufficient' appears to vary from case to case, but it is doubtful that a single strand of the bundle would be considered property on its own.'

According to the Deputy Attorney-General customary or deemed I

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rights of occupancy lack two of the three essential characteristics of property. A First, the owner of such a right cannot exclude all others since the land is subject to the superior title of the President of the United Republic in whom the land is vested. Second, under s 4 of the Land Ordinance, the occupier of such land cannot transfer title without the consent of the President. B

With due respect to the Deputy Attorney-General, we do not think that his contention on both points is correct. As we have already mentioned, the correct interpretation of s 4 and related sections above mentioned is that the President holds public land on trust for the indigenous inhabitants of that land. From this legal C position, two important things follow. Firstly, as trustee of public land, the President's power is limited in that he cannot deal with public land in a manner in which he wishes or which is detrimental to the beneficiaries of public land. In the words of s 6(1) of the Ordinance, the President may deal with public land only 'where it appears to him to be in the general interests of Tanganyika'. Secondly, as D trustee, the President cannot be the beneficiary of public land. In other words, he is excluded from the beneficial interest.

With regard to the requirement of consent for the validity of title to the occupation and use of public lands, we do not think that the requirement applied to the E beneficiaries of public land, since such an interpretation would lead to the absurdity of transforming the inhabitants of this country, who have been in occupation of land under customary law from time to immemorial, into mass squatters in their own country. Clearly that could not have been the intention of those who enacted the Land Ordinance. It is a well known rule of interpretation that F a law should not be interpreted to lead to an absurdity. We find support from the provisions of art 8 of the Trusteeship agreement which expressly exempted dispositions of land between the indigenous inhabitants from the requirement of prior consent of the governing authority. In our considered opinion, such consent is G required only in cases involving disposition of land by indigenous inhabitants or natives to non-natives in order to safeguard the interests of the former. We are satisfied in our minds that the indigenous population of this country are validly in occupation of land as beneficiaries of such land under customary law and any H disposition of land between them under customary law is valid and requires no prior consent from the president.

We are of course aware of the provisions of the Land Regulations, 1948 and specifically reg 3 which requires every disposition of a Right of Occupancy to be in writing and to be approved by the I

A President. In our considered opinion the Land Regulations apply only to a Right of Occupancy granted under s 6 of the Land Ordinance and have no applicability to customary or deemed rights of occupancy, where consent by a public authority is required only in the case of a transfer by a native to a non-native. A contrary interpretation would result in the absurdity we have mentioned earlier. B

As to the contention by the Deputy Attorney-General to the effect that the right to property under art 24 of the Constitution is derogated from by the provision contained therein which subjects it to 'the relevant laws of the land', we do not C think that, in principle, that expression, which is to be found in other parts of the Constitution, can be interpreted in a manner which subordinates the Constitution to any other law. It is a fundamental principle in any democratic society that the Constitution is supreme to every other law or institution. Bearing this in mind, we D are satisfied that the relevant proviso means that what is stated in

the particular part of the Constitution is to be exercised in accordance with relevant law. It hardly needs to be said that such regulatory relevant law must not be inconsistent with the Constitution.

E For all these reasons therefore we have been led to the conclusion that customary or deemed rights in land, though by their nature are nothing but rights to occupy and use the land, are nevertheless real property protected by the provisions of art 24 of the Constitution. It follows therefore that deprivation of a customary or deemed right of occupancy without fair compensation is prohibited by the Constitution. The prohibition of course extends to a granted right of F occupancy. What is fair compensation depends on the circumstances of each case. In some cases a reallocation of land may be fair compensation. Fair F compensation however is not confined to what is known in law as unexhausted improvements. Obviously where there are unexhausted improvements, the G constitution as well as the ordinary land law requires fair compensation to be paid for its deprivation.

H We are also of the firm view that where there are no unexhausted improvements, but some effort has been put into the land by the occupier, that occupier is entitled to protection under art 24(2) and fair compensation is payable for deprivation of property. We are led to this conclusion by the principle, stated by Mwalimu Julius K Nyerere in 1958 and which appears in his book 'Freedom and Unity', published by Oxford University Press, 1966. Nyerere states, inter alia: I

'When I use my energy and talent to clear a piece of ground for my use it is clear that I am A trying to transform this basic gift from God so that it can satisfy a human need. It is true, however, that this land is not mine, but the efforts made by me in clearing that land enable me to lay claim of ownership over the cleared piece of ground. But it is not really the land itself that belongs to me but only the cleared ground which will remain mine as long as I continue to B work on it. By clearing that ground I have actually added to its value and have enabled it to be used to satisfy a human need. Whoever then takes this piece of ground must pay me for adding value to it through clearing it by my own labour.' C

This in our view, deserves to be described as 'the Nyerere Doctrine of Land Value' and we fully accept it as correct in law.

We now turn to the second ground of appeal. This one poses no difficulties. The genesis of this ground of appeal is the finding of the Trial Judge where she states, D

'In the light of the provision of art 24(1) and (2) of the Constitution, s 3 and 4 of Act No 22 of 1992 violate the Constitution by denying the petitioners the right to go on possessing their deemed rights of occupancy and what is worse, denying the petitioners compensation under s 3(4) of Act No 22 of 1992.' E

Like both sides to this case, we are also of the view that the learned Trial Judge erred in holding that the provisions of s 4 of Act No 22 of 1992 denied the petitioners or any other occupier compensation for unexhausted improvements. The clear language of that section precludes compensation purely on the basis of extinction of customary rights in land. The section reads: F

'No compensation shall be payable only on account of loss of any right or interest in or over land which has been extinguished under s 3 of this Act.' G

But as we have already said, the correct constitutional position prohibits not only deprivation of unexhausted improvements without fair compensation, but every deprivation where there is value added to the land. We shall consider the constitutionality of s 4 later in this judgment. H

Ground number 3 attacks the finding of the Trial Judge to the effect that the provisions of Act No 22 of 1992 which oust the jurisdiction of the Courts from dealing with disputes in matters covered by the Act are unconstitutional. The relevant part of the judgment of the High Court reads as follows: I

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A 'The effect of ss 5 and 6 of Act No 22 of 1992 is to oust the jurisdiction of the Courts of law in land disputes arising under the controversial Act No 22 of 1992 and exclusively vesting such jurisdiction in land tribunals. Such ousting of the courts jurisdiction by ss 5 and 6 of Act No 22 of 1992 violates arts 30(1), (3), (4) and 108 of the Constitution.' B

The Deputy Attorney-General has submitted to the effect that the Constitution allows, specifically under art 13(6)(a), for the existence of bodies or institutions other than the courts for adjudication of disputes. Such bodies or institutions C include the Land Tribunal vested with exclusive jurisdiction under s 6 of Act No 22 of 1992. We are greatful for the interesting submission made by the Deputy Attorney-General on this point, but with due respect, we are satisfied that he is only partly right. We agree that the Constitution allows the establishment of D quasi-judicial bodies, such as the Land Tribunal. What we do not agree is that the Constitution allows the courts to be ousted of jurisdiction by confering exclusive jurisdiction on such quasi-judicial bodies. It is the basic structure of a democratic constitution that state power is divided and distributed between three state pillars. These are the Executive, vested with executive power; the Legislature vested with E legislative power, and the Judicature vested with judicial powers. This is clearly so stated under art 4 of the Constitution. This basic structure is essential to any democratic constitution and cannot be changed or abridged while retaining the F democratic nature of the constitution. It follows therefore that wherever the constitution establishes or permits the establishment of any other institution or body with executive or legislative or judicial power, such institution or body is meant to function not in lieu of or in derogation of these three central pillars of the state, but only in aid of and subordinate to those pillars. It follows therefore that G since our Constitution is democratic, any purported ouster of jurisdiction of the ordinary courts to deal with any justiciable dispute is unconstitutional. What can properly be done wherever need arises to confer adjudicative jurisdiction on bodies other than the courts, is to provide for finality of adjudication, such as by appeal or review to a superior court, such as the High Court or Court of Appeal. H

Let us skip over ground number 4 which is the concluding ground of the whole appeal. We shall deal with it later. For now, we turn to ground number 5. This ground relates to that part of the judgment of the learned Trial Judge, where she states: I

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'It is reverse discrimination to confiscate the petitioners deemed right of occupancy and A reallocate the same to some other needy persons because by doing so the petitioners are deprived of their right to own land upon which they depend for a livelihood which was why they acquired it back in 1943.'

There is merit in this ground of appeal. Act No 22 of 1992 cannot be construed to B be discriminatory within the meaning provided by art 13(5) of the Constitution. Mr Sang'ka's valiant attempt to show that the Act is discriminatory in the sense that it deals only with people in the rural areas and not those in the urban areas was correctly answered by the Deputy Attorney-General that the Act was enacted to C deal with a problem peculiar to rural areas. We also agree with the learned Deputy Attorney-General, that the act of extinguishing the relevant customary or deemed rights of occupancy did not amount to acquisition of such rights. As it was stated in the Zimbabwe case of Hewlett v Minister of Finance (3) cited earlier where an D extract of a judgment of Viscount Dilhome is reproduced stating:

'Their Lordships agree that a person may be deprived of his property by mere negative or restrictive provision but it does not follow that such a provision which leads to deprivation also leads to compulsory acquisition or use.' E

It is apparent that, during Operation Vijiji what happened was that some significant number of people were deprived of their pieces of land which they held under F customary law, and were given in exchange other prices of land in the villages established pursuant to Operation Vijiji. This exercise was undertaken not in accordance with any law but purely as a matter of government policy. It is not apparent why the government chose to act outside the law, when there was legislation which could have allowed the government to act according to law, as it was bound to. We have in mind the Rural Lands (Planning and Utilization) Act, G 1973, Act No 14 of 1973, which empowers the President to declare specified areas to regulate land development and to make regulations to that effect, including regulations extinguishing customary rights in land and providing for H compensation for unexhausted improvements, as was done in the case of Rufiji District under Government Notice Nos 25 of 10 May 1974 and 216 of 30 August 1974. The inexplicable failure to act according to law, predictably led some aggrieved villagers to seek remedies in the courts by claiming recovery of the I

A lands they were dispossessed during the exercise. Not surprisingly most succeeded. To avoid the unraveling of the entire exercise and the imminent danger to law and order, the Land Development (Specified Areas) Regulations, 1986 and the Extinction of Customary Land Rights Order, 1987 were made under Government Notice No 659 of 12 December 1986 and Government Notice No 88 of 13 February 1987 respectively. As we have already mentioned earlier in this B judgment, Government Notice No 88 of 13 February 1987 extinguished customary land rights in certain villages in Arusha Region, including the village of Kambi ya Simba where the respondents come from. We shall consider the legal effect of this Government Notice later in this judgment. C

For the moment we must turn to ground number 6 of the appeal. Although the Deputy Attorney-General was very forceful in submitting to the effect that the learned Trial Judge erred in striking down from the statute book those provisions of D Act No 22 of 1992 which she found to be unconstitutional, he cited no authority and indicated no appropriate practice in countries with jurisdiction similar on what may be described as the authority or force of reason by arguing that the Doctrine E of Separation of Powers dictates that only the Legislature has powers to strike out a statute from the statute book. We would agree with the learned Deputy Attorney-General in so far as valid statutes are concerned. We are unable, on the authority of reason, to agree with him in the case of statutes found by a competent court to be null and void. In such a situation, we are satisfied that such court has F inherent powers to make a consequential order striking out such invalid statute from the statute book. We are aware that in the recent few weeks some legislative measures have been made by Parliament concerning this point. Whatever those measures may be, they do not affect this case which was decided by the High Court a year ago. G

Ground number 7 is next and it poses no difficulty at all. It refers to that part of the High Court's judgment where the learned Trial Judge states:

H 'Furthermore s 3(4) of Act No 22 of 1992 forbids any compensation on account of the loss of any right or interest in or over land which has been extinguished under s 3 of Act No 22 of 1992.'

As both sides agree, the reference to s 3(4) must have been a slip of the pen. There is no such section. The learned Trial Judge must I

have been thinking of s 4 and would undoubtedly have corrected the error under A the Slip Rule had her attention been drawn to it.

We must now return to ground number 4. The genesis of this ground is that part of the judgment of the trial court where it states:

'For reasons demonstrated above the court finds that ss 3, 4, 5 and 6 of Act No 22 of 1992 the B Regulation of Land Tenure (Established Villages) Act 1992 violate some provisions of the Constitution thereby contravening art 64(5) of the Constitution. The unconstitutional Act No 22 of 1992 is hereby declared null and void and accordingly struck down ...'.

The learned Deputy Attorney-General contends in effect that the learned Trial C Judge, having found only four sections out of twelve to be unconstitutional ought to have confined herself only to striking down the four offending sections and not the entire statute. There is merit in this ground of appeal. There is persuasive authority D to the effect that where the unconstitutional provisions of a statute may be severed leaving the remainder of the statute functioning, then the court should uphold the remainder of the statute and invalidate only the offending provisions. See the case of Attorney-General of Alberta v Attorney-General of Canada (5). E

In the present case, for the reasons we have given earlier, we are satisfied that ss 3 and 4 which provide for the extinction of customary rights in land but prohibit the payment of compensation

with the implicit exception of unexhausted improvements only are violative of art 24(1) of the Constitution and are null and void. Section 4 would be valid if it covered compensation for value added to land F within the scope of the Nyerere Doctrine of Land Value.

But as we have pointed out earlier in this judgment, this finding has no effect in the villages of Arusha Region including Kambi ya Simba, which are listed in the schedule to Government Notice No 88 of 1987. The customary rights in land in G those listed villages were declared extinct before the provisions of the Constitution, which embody the Basic Human Rights became enforceable in 1988 by virtue of the provisions of s 5(2) of the Constitution (Consequential, Transitional and Temporary Provisions) Act, 1984. This means that since the provisions of the H Basic Human Rights section are not retrospective, when the 1992 Act was enacted by Parliament, there were no customary rights in land in any of the listed villages of Arusha Region. This applies also to other areas, such as Rufiji District where, as we have shown, customary rights in land were extinguished by law in the early 1970s. Bearing in mind that the I

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NYALALI CJ

A 1992 Act, which can correctly be described as draconian legislation, was prompted by a situation in some villages in Arusha Region, it is puzzling that a decision to make a new law was made where no new law was needed. A little research by the Attorney General's Chambers would have laid bare the indisputable fact that customary rights in land in the villages concerned had been extinguished a year before the Bill of Rights came into force. With due respect to B those concerned, we feel that this was unnecessary panic characteristic of people used to living in our past rather that in our present which is governed by a constitution embodying a bill of rights. Such behavior does not augur well for good governance. C

With regard to s 5(1) and (2), which prohibits access to the courts or tribunal, terminates proceedings pending in court or tribunal and prohibits enforcement of decisions of any court or tribunal concerning land disputes falling within the 1992 Act, we are satisfied, like the learned Trial Judge, that the entire section is D unconstitutional and therefore null and void, as it encroaches upon the sphere of the judicature contrary to art 4 of the Constitution and denies an aggrieved party remedy before an impartial tribunal contrary to art 13(6)(a) of the same Constitution. E

The position concerning s 6 is slightly different. That section reads:

> 'No proceeding may be instituted under this Act, other than in the Tribunal having jurisdiction over the area in which the dispute arises.' F

Clearly this section is unconstitutional only to the extent that it purports to exclude access to the courts. The offending parts may, however, be severed so that the G remainder reads 'Proceedings may be instituted under this Act in Tribunal having jurisdiction over the area in which the dispute arises.' This would leave the door open for an aggrieved party to seek a remedy in the courts, although such courts would not normally entertain a matter for which a special forum has been established, unless the aggrieved party can satisfy the court that no appropriate remedy is available in the special forum. H

The remainder of the provisions of the 1992 Act, including s 7, which can be read without the proviso referring to the invalidated s 3, can function in respect of the matters stated under s 7 of the Act. To that extent, therefore, the learned Trial Judge was wrong in I
1995 TLR p97
NYALALI CJ
striking down the entire statute. To that extent we hereby reverse the decision of A the court below. As neither side is a clear winner in this case, the appeal is partly allowed and partly dismissed. We make no order as to costs. B
1995 TLR p97
C
[zRPz]MBUSHUU alias DOMINIC MNYAROJE AND ANOTHER v REPUBLIC 1995 TLR 97 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Makame JJA, Ramadhani JJA and Lubuva JJA D

Criminal Appeal No 142 of 1994 E
January 30, 1995
(From the conviction and sentence of the High Court of Tanzania at Dodoma, Mwalusanya, J)
Flynote
Evidence - Corroboration - Purpose of corroborative evidence.
Evidence - Identification - Identification by witnesses whose evidence is deficient, suspect or incredible - Whether can be relied upon. F
Constitutional law - Death sentence and the Constitution - Whether the death sentence offends the Constitution or is saved by the saving provisions of the Constitution - Article 13(6)(d) and (e) and art 30(2) of the Constitution of the United Republic of Tanzania. G
-Headnote
The High Court of Tanzania at Dodoma convicted the appellants of the offence of murder but sentenced each of them to life imprisonment, instead of the mandatory death sentence, on the ground that the death penalty was unconstitutional. The High Court grounded its conviction on evidence of identification given by two H witnesses and corroborated by another witness. The appellants appealed against conviction attacking the Court's basing the conviction on the evidence of identification which they argued was deficient, suspect and incredible, and not meriting of any corroboration. The respondent cross-appealed against the sentence of life imprisonment and the decision that the death penalty was unconstitutional. I
1995 TLR p98
A Held:
(i) Courts look for corroboration when, in the light of all the evidence, a witness is worthy of belief. The purpose of corroboration is not to give validity or credence to evidence

which is deficient or suspect or incredible but only to confirm or support that which as evidence is sufficient and satisfactory and credible;

B (ii) Since PW1 and PW2 are not credible then there cannot be corroboration from PW2 or anybody;

(iii) Since the identification of the appellants was done by witnesses whose evidence was deficient, suspect or incredible the appellants were not properly identified as the persons who took the stolen animals to PW1;

C (iv) The doctrine of recent possession could not be applied to the appellants and connect them with the murder of the deceased;

(v) The death penalty is inherently inhuman, cruel and degrading punishment and it is also so in its execution and it offends art 13(6)(d) and (e) of the Constitution of the United Republic of Tanzania;

D (vi) Whether or not legislation which derogates from a basic right of an individual is in the public interest depends on first, its lawfulness, that is, it should not be arbitrary and second, on the proportionality test, that is, the limitation imposed should not be more than is reasonably necessary;

E (vii) Though the death penalty as provided by s 197 of the Penal Code, Cap 16, offends art 13(6)(d) and (e) of the Constitution, it is not arbitrary, hence a lawful law and it is reasonably necessary and it is thus saved by art 30(2) of the Constitution; the death penalty is, therefore, not unconstitutional.

Case Infomation

F Both appeals allowed.

Cases referred to:

(1) Uganda v. Shah & Two Others [1966] EA 30

(2) Aziz Abdallah v. R [1991] TLR 71

G (3) DPP v. Kilbourne [1973] AC 729

(4) Barret Sutcliffe v. Jamaica UN Doc CCPR/6/E 44/D/R 988 s 3.4 and 3.5

(5) Abolt v. AG of Trinidad and Tobago [1979] 1 WLR 1342

(6) The State v. Petrus [1985] LRC (Const) 699

(7) Ndlovu v. The State [1988] LRC (Const) 442

H (8) Catholic Commission for Justice and Peace in Zimbabwe v. AG and Others, [1993] 1 ZLR 242

(9) Bacher Singh v. State of Punjab [1933] 1 SCR 154

(10) Michael de Freitas v. George Ramounter Benny [1976] AC 239

(11) DPP v. Daudi Pete [1993] TLR 22

(12) Trop v. Dulles 356 US 86

(13) Tyrer v. United Kingdom 2 EHRRl I

(14) Furman v. Georgia (1972) 408 US 238

(15) Kukutia Ole Pumbun v. AG [1993] TLR 97 A

(16) Said Mwamwindi [1972] HCD No 212
(17) R v. Asha Mkwizu Hauli, Crim Sessions Case No 3 of 1984 (DSM) (unreported)
(18) DPP v. Lenganzo Nyanje, Crim Appeal No 68 of 1980 (unreported)
Rweyongeza for the appellants. B
Miss W Korosso for the respondent.
[zJDz]Judgment
Ramadhani, JA: delivered the following considered judgment of the Court: C
The High Court of Tanzania At Dodoma (Mwalusanya, J) being satisfied beyond reasonable doubt that the two accused persons; Mbushuu alias Dominic Mnyaroje and Kalai Sangula, had killed with malice aforethought a herdsboy, Saidi s/o Jingu, D convicted them of murder as charged. After some submissions as to the constitutionality of the death sentence, the learned Trial Judge declared that sentence unconstitutional and committed each of the accused persons to life imprisonment.
The two accused persons have appealed against conviction and the Republic has E appealed against the sentence. We have consolidated the two appeals for obvious reasons. Since conviction comes first before sentence, we have regarded Mbushuu alias Dominic Mnyaroje as the first appellant and Kalai Sangula as the second appellant and the Republic is taken to be the respondent. F
One Naftali s/o Ngamaa (PW3), is a resident of Mkwese village, Manyoni District, and owned some cattle and goats. On the morning of 6 September 1984, together with his herdsboy, Saidi s/o Jingu, the deceased, he took his animals to drink water and then left them under the care of the deceased for grazing. PW3 returned home but the deceased never did, even as late as at 7.00 pm. G Suspecting that something was amiss, he raised an alarm and went out in search of the deceased and the animals without success. We may point out here that there is no evidence as to when the deceased was found fatally wounded. However, PW3 and Athumani Mtinangi (PW4), then the ten cell leader of PW3 H owned to have seen the deceased with a spear wound in the ribs. The deceased told them that some strangers had attacked him and got away with the animals he was herding. The lad could not make it to the hospital. He died on the way.
Almost a month later, PW3 and PW4 were told that some of the I
1995 TLR p100
RAMADHANI JA
A stolen animals were at Mkatika Village, Bahi, in Dodoma District. In the company of some policemen, the two witnesses went to the kraal of Mosi Masingisa (PW1) where they identified four cattle and eight goats out of the stolen animals. At the kraal there were also Mdachi Hongole (PW5) and Matonya Yohana (PW6).
B PW1 told the court that the animals, six cattle and eight goats, were taken to his place by the two appellants and another person still at large called Moro s/o James. That was on 6 September 1984, the date the deceased was attacked and robbed. That was reiterated by PW6. PW1 also said that it was his first time to see the first appellant but that he had known the second appellant and Moro before C that day. PW1 further told the court that there was no movement permit for the animals which were intended to be left at his kraal for tending. PW1

then took the appellants and Moro to the village chairman, Masangwai Mafuma (PW2), who D allowed the animals to be left there provided that a movement permit was brought in due course. PW2 did not see the animals but he was just told that there was a bull and five cows. He did not mention the goats. PW1 also testified that the second appellant told him, as they were leaving, that the first appellant would E return for the two bulls. A few days later, the first appellant and Moro went to PW1 and took the two bulls. The movement permit still had not been produced, but PW1 was told, when the two bulls were taken, that the second appellant would deliver the permit to him. PW2 was also aware that the two animals had been taken away.

F According to PW2 and PW6, some time in October, 1984, PW3, PW4 and some policemen appeared at the kraal of PW1 searching for some stolen animals and that the four cattle and eight goats were identified as among the stolen animals. PW1 was arrested and charged with murder but the charges were later dropped and he was released. Also arrested were PW5 and PW6, and, like PW1, they were later released from custody. G

Both appellants denied involvement in the raid and the resulting murder. The first appellant claimed that he was a businessman at Saranda, Manyoni District, and that he had not gone to Mkatika Village on the fateful day. He further told the court that on 30 August 1984 he left Saranda for Dar es Salaam to attend to his sick H child who later died. The first appellant said that he remained in Dar es Salaam and got back to Saranda on 6 October 1984. The first appellant was supported in his alibi by his brother-in-law, Joseph Lazaro (DW1), who had accompanied him to and from Dar es Salaam. I

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RAMADHANI JA

The second appellant, too, claimed that he was at his residence at Dabiya Village A on the fateful day. He further told the court that he was charged with the murder of another on 26 December 1989 and that he was convicted of manslaughter and was sentenced to fifteen years imprisonment. He claimed to be a victim of circumstances.

At already said, Mwalusanya, J believed PW1 and PW6 that it was the appellants B who took some of the stolen animals to the kraal of PW1 where they were identified by PW3 and PW4. The learned Trial Judge found corroboration of that story in the testimony of PW2. Applying the doctrine of recent possession, the learned Trial Judge found the two appellants to have been among the persons who attacked and robbed the deceased. Thus he found the appellants guilty of murder as charged. C

Mr Rweyongeza, learned advocate, appeared for the appellants and had five grounds of appeal which, with respect, boil down to challenging the identification of the appellants. Mr Rweyongeza has sought to do that in three ways. D

First, Mr Rweyongeza submitted that the two identifying witnesses, PW1 and PW6 are not reliable. The learned advocate pointed out that both witnesses had been arrested for this incident though they were later released. So, he submitted, they E had an interest to serve and that in order to save their skins they are willing to shove the baby into any other persons's

hands. Mr Rweyongeza added that PW1 had actually been charged with the murder of the deceased.

Second, Mr Rweyongeza pointed out that when PW1 was asked by PW3 and F PW4 as to how he got the animals, he mentioned one Lemmy as the person who had taken them to his place. However, in his testimony in court, the learned advocate said, PW1 mentioned the appellants as the persons who had taken the animals to his kraal. G

Third, the learned advocate said that PW2 cannot provide corroboration to PW1 and PW6, as the learned trial judge found, because of some discrepancies in his testimony. Mr Rweyongeza pointed out that PW2 did not mention goats as among the animals which were brought to PW1. Then, the learned advocate added, PW2 said that the animals belonged to Moro while PW1 named the second appellant as H the owner. Apart from that, Mr Rweyongeza said, PW2 did not see the animals but was just told by PW1 that some animals had been brought to his place.

Lastly, Mr Rweyongeza argued, if the identification of the appellants is not watertight and as the alibis of the appellants have not I

A been contradicted, then the appellants should be acquitted.

On behalf of the respondents Republic was Miss Korosso, learned State Attorney. She supported the conviction and submitted that the learned Trial Judge who saw and heard PW1 and PW6 believed them to be credible and that he cannot be B faulted. She contended that the witnesses have no interest to serve. Besides, Miss Korosso added, PW1 and PW6 are corroborated by PW2 whose evidence to the fact that it were the appellants who sent the animals to PW1 is that of an independent witness.

C The appeal stands or falls on the issue of identification. If they were properly identified as the persons who took the animals to PW1 then their alibis must fail and, on the basis of the doctrine of recent possession, they are the murderers. So, were they adequately identified?

D We agree with Mr. Rweyongeza that the evidence of PW1 and PW6 has to be scrutinized carefully. The stolen animals were found in their possession and they had received them without the prerequisite movement permit. That made them suspects and hence their arrest. They would naturally want to distance themselves from the event. But worse still is the testimony of PW3 and PW4 that PW1 mentioned Lemmy as the person who had brought the animals to him. He E claimed to have known the second appellant as a small boy. The second appellant himself acknowledges to have been born and brought up in Mkatika Village and that he is known to PW1. So, there is absolutely no question of PW1 mistaking Lemmy for the second appellant. Why did PW1 tell a lie at that first available F opportunity? Whom was he protecting and why? To crown it all, if the so well-known second appellant was the culprit why did it take so long to arrest him? It has not been controverted that he was arrested, charged with and convicted of manslaughter in another case in 1985. So, all this time he was at large and it has G never been claimed that the police were looking for him. The first appellant, too, was first arrested in 1985, he was discharged in 1988 and re-arrested in 1990. In fact on 16 July 1991 the first appellant was named by Mr Ndunguru, learned State Attorney, to be the first prosecution

witness. Why was that if PW1 and PW6 had properly identified him on the fateful day of 6 September 1984, that is, seven years previously? H

We must admit that we have not been able to find answers to all the questions posed above. Hence the credibility of PW1 and PW6 is greatly in doubt.

Could PW2 provide corroboration? It is trite law that a court I

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RAMADHANI JA

looks for corroboration when, in the light of all the evidence, a witness is worthy of belief. A

The purpose of corroboration is not to give validity or credence to evidence which is efficient or suspect or incredible but only to confirm or support that which as evidence is sufficient and satisfactory and credible. B

That was said by our predecessor in Uganda v Shah & Two Others (1). Also in Aziz Abdallah v R (2) at p 10 we quoted with approval what was said by Lord Hailsham in DPP v Kilbourne (3) at p 745 that: C

`If a witness's testimony fails of its own inanities the question of his needing or being capable of giving corroboration does not arise.'

Since PW1 and PW6 are not credible, then there cannot be corroboration from D PW2 or anybody. There is no need even to discuss the testimony of PW2

We may as well mention two matters very quickly. One, it is remarkable that not a single policeman was called to testify though evidence shows that a couple of them were involved in the investigation. That could make a court draw an adverse inference. Two, the learned Trial Judge said in his judgment: E

`In any case the two accused have not challenged the contention that the four heads (sic) of cattle and eight goats are part of the cattle that were robbed from the deceased on 6 September 1984.' F

We think the appellants' behavior has been consistent with their testimony. Both of them have said that they do not know anything about the cattle raid. They were not at the scene of crime. They did not know the deceased or the animals he was G herding. So, how could they, then, with the same breath, say that the four head of cattle and the eight goats did not belong to the lot in the care of the deceased?

So, we find that the appellants were not properly identified as the persons who took the stolen animals to PW1. Therefore, the doctrine of recent possession H cannot be applied to them and connect them with the murder of the deceased. We, therefore, quash the conviction of murder and set aside the sentence of life imprisonment imposed of them.

But was that sentence of life imprisonment for murder proper? In other words, is the death sentence unconstitutional? I

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RAMADHANI JA

A The learned Trial Judge found death sentence unconstitutional under art 64(5) of the Constitution of the United Republic of Tanzania 1977 after holding that:

`the two petitioners have managed to prove on a balance of probabilities that the death penalty is cruel, inhuman and degrading punishment/treatment and also that it offends the right to B dignity of man in the process of execution of the sentence. At the same time the Republic has failed to prove on a balance of probabilities that the impugned law is in public interest and that it is a lawful law under art 30(2) of the Constitution. C

Before the learned Trial Judge, Mr Rweyongeza made three submissions and after a long deliberation covering 26 typed foolscap sheets the above quoted holding was arrived at. Mr Rweyongeza at the start argued that the death penalty is D contrary to art 13(6)(e) of the Constitution as its execution offends the right to dignity; second, it is a cruel, inhuman and degrading punishment contrary to art 13(6)(e); and lastly, that the death penalty violates the right to life as provided by art 14 of the Constitution.

F Before us Miss Korosso presented a memorandum of appeal containing three grounds. In the first ground the learned State Attorney seeks to fault the learned trial Judge in holding that Art. 14 of the Constitution guarantees absolute right to life and that s 197 of the Penal Code, which provides for the death penalty, breaches that guarantee.

G The learned State Attorney took quite some time on that. However, we do not think it necessary to go over her submission, as Mr Rweyongeza pointed out, the learned trial judge did not make that finding.

The learned judge, after referring to our decision in DPP v Daudi Pete (11) that the Kiswahili version of the Constitution is the authentic one, said:

"The Swahili version reads: "Kila mtu anayo haki kuishi na kupata kutoka kwa jamii hifadhi ya maisha yake, kwa H muyibu wa Sheria." It is crystal clear from that wording in the Swahili version that both the right to life and the right to the protection of ones life by the society, is subject to the clawback clause "subject to law". So it is my finding that the right to life is not absolute but subject to law."

So the learned trial judge held quite the opposite of what Miss Korosso understood him to have I done. However, the learned State

Attorney was quick to reply that the subsequent pronouncements of the learned trial judge negated A the above quoted finding. Miss Korosso did not cite any such pronouncement. We shall have so see what the learned Trial Judge said in that part of his judgment entitled whether the law prescribing the death penalty is lawful law. B

As her second ground of appeal Miss Korosso submitted that the learned Trial Judge erred in holding that art 13(6)(d) and (e) prohibited the mode of execution of C the death penalty by hanging as provided under s 26 of the Penal Code. Thus the learned State Attorney was saying that the death penalty is not cruel, inhuman and degrading punishment. She contended that all punishments, without exception, are cruel. She, however, conceded that there is some delay in the execution of the death penalty. However, she does not consider delay as a factor D making death penalty cruel and inhuman. On the contrary, she has submitted, any delay in the execution of the punishment kindles some hope in the condemned prisoner. Miss Korosso in

support of her submission referred us to Barret Sutcliffe v Jamaica (4); Abolt v AG of Trinidad and Tobago (5) and a book by William A Schabas entitled The Abolition of the Death Penalty in International Law. E

Mr Rweyongeza was very categoric that death penalty is cruel, torturous and most inhuman and that it offends art 13(6)(e) of the Constitution. F

The learned Trial Judge dealt with the issue of the death penalty and whether it is cruel, inhuman and degrading at great length. He said that a punishment can be inherently cruel, inhuman and degrading or it can be so in the mode of its execution. The learned Trial Judge followed the decision of the Court of Appeal of Botswana in The State v Petrus (6) and also the decision of the Supreme Court of Zimbabwe in Ndlovu v The State (7). G

As for the death penalty, the learned Trial Judge upheld the submission on behalf of the present appellants that the cruelty, the inhumanity and the degradation are both inherent and in the mode of execution. He said that killing is per se offensive, H this is so whether done by private person or by the State. He went on to say that killing by the State is even more repugnant as there lacks the element of provocation which in many cases is the cause of killing by a private individual. So, the learned judge continued, State killing is in cold blood and, referring to Clarence Darrow in Attorney I

A for the Damned, (1957) Simon & Schuster, New York, at 92, the State teaches the public to kill.

The learned Trial Judge found the inevitable delay in executing death penalty to add insults to the injury and to cause prolonged mental torture. He cited the decision of the Supreme Court of Zimbabwe in Catholic Commission for Justice and Peace in B Zimbabwe v AG and others (8). Coupled to the delay, the learned judge found that the conditions obtained in the death cells are horrible and add to the anguish of the condemned prisoner. The mode of the execution of the death penalty, that is hanging, according to the learned judge, completes the sordid and the debasing C character of the penalty. The learned judge described the mode of execution at some length pointing out that at the end of the day the dead body of the prisoner is left in a mess and that there could not be a more inhuman and degrading sight.

D The learned judge remarked that the fact that the State executes in secret and without publicity is a clear acknowledgement of its guilty conscience that what it is doing is cruel, inhuman, degrading and that the punishment is despicable.

E As her third ground, Miss Korosso submitted that the learned Trial Judge erred in not finding that the death penalty is saved by art 30(2) of the Constitution.

Miss Korosso said that s 197 of the Penal Code, Cap 16, which provides for the death punishment for murder, is not arbitrary. She submitted that the penalty is imposed after due process of law, that is, after a full trial in which the burden of proof is on the prosecution and with a provision for appeal and eventually a F provision for seeking pardon from the President. Miss Korosso also pointed out that pregnant women and youths under the age of 18 years are exempted from the death penalty. The learned State Attorney cited Bacher Singh v State of Punjab (9) G as

authority for the proposition that when life is taken away in due process of law then that action is not unconstitutional. She said that such provisions for the death penalty, as our s 197 of the Penal Code, which have existed before the provisions on human rights and fundamental freedoms were introduced in the constitutions H are specifically saved by the same constitutions. She said that this was so with art 3 of the Constitution of Trinidad and Tobago. She referred us to Michael de Freitas v George Ramoutar Benny (10).

As for international instruments, Miss Korosso submitted that the African Charter on Human and Peoples' Rights (hereinafter referred to as the African Charter) requires that the respect for life I

and the integrity of the person of an individual should not be deprived arbitrarily (art A 4). She also pointed out that art 2(1) of the European Convention on Human Rights and Fundamental Freedoms (hereinafter referred to as the European Convention) protects life and adds that none `shall be deprived of his life intentionally save in the execution of a sentence of a court following his conviction of a crime for which this penalty is provided by law'. B

Miss Korosso also contended that the death penalty passes the proportionality test because it is in the public interest. The learned State Attorney said that she is aware of the moves toward the abolition of that penalty in some countries. However, she submitted that death penalty has proved to be a deterrent and that C some of the jurisdictions which abolished it, such as California, Guatemala, Mauritius, North Carolina and Texas, have swiftly reinstated it.

The learned State Attorney submitted further that there is the prerogative of mercy D which takes care of the appropriateness of the penalty in the peculiar circumstances of every individual case. She pointed out that in Tanzania there is a committee for advising on the exercise of the prerogative of mercy under the Presidential Affairs Act, Cap 502. All these measures, according to her, take care of the proportionality test. E

Miss Korosso contended that as death penalty is neither arbitrary nor in contravention of the proportionality test, then its derogation from the right to life is saved under art 30(2)(c).

Mr Rweyongeza admitted that there is due process of law when considering the F death penalty. However, he pointed out that the period from the end of the determination of an appeal by the Tanzania Court of Appeal, to the time of the execution of the penalty, is also part and parcel of the due process of law and that this portion of time is tainted with arbitrariness. He said so because, first, the G period is indeterminate and frequently tormentingly long. This he added, also offends the proportionality test. Then, Mr Rweyongeza said, there are no guidelines given on the usage of the prerogative of mercy. Therefore, he contended, the death penalty is not saved by art 30(2) of the Constitution. H

As for the first ground of appeal, we agree with Mr Rweyongeza that the learned Trial Judge categorically stated that the right to life under art 14 of the Constitution is not absolute. He struck out the provision for the death penalty not because it contravenes the absolute right to life but because of reasons which we shall deal with shortly. We do not agree with Miss Korosso that what the learned I

A judge said later negated that finding. This should suffice to dismiss the first ground of Miss Korosso. However, later on Mr Rweyongeza in effect submitted that the right to life under art 14 of the Constitution is absolute.

B Mr Rweyongeza submitted that art 14 merely prescribes the right to life and enjoins the law to protect that right. He pointed out that that article does not provide for the deprivation of life. He contrasted our art 14 with art 21 of the Constitution of India which provides:

C `No person shall be deprived of his life or personal liberty except according to procedure established by law.'

Mr Rweyongeza contended that since art 14 does not provide for deprivation of Life, as art 21 of the Indian Constitution does, then any law which purports to take away that right, that is, a law providing for the death penalty, is unconstitutional. D

We have already decided in DPP v Daudi Pete (11), as the learned Trial Judge properly observed, that the Kiswahili version of the Constitution is the authentic one. Article 14 of that version provides as follows: E

`Kila mtu anayo haki ya kuishi na kupata kutoka kwa jamii hifadhi ya maisha yake, kwa mujibu wa sheria.'

F The translation of that article in the English version is terribly misleading. As this judgment is in English there is a need for us to make our own translation of art 14 as follows:

`Every person has a right to life and to receive from the society the protection of his life, in accordance with law.'

G Admittedly, our art 14 does not expressly provide for the deprivation of the right to life as does art 21 of the Constitution of India. Our research has shown that a number of other countries have formulations like that of art 21 of the Constitution of India. For example, art 13(1) of the Constitution of the Republic of Ghana, 1992 provides: H

`No person shall be deprived of his life intentionally except in the exercise of the execution of a sentence of a court in respect of a criminal offence under the laws of Ghana of which he has been convicted.' I

Similar couching providing for deprivation of life is found in art 32 of the A Constitution of the People's Republic of Bangladesh, Fifth Amendment of the Constitution of the United States of America, art III(1) of the 1987 Constitution of the Republic of the Philippines and also, we may add, Article 52 of the Draft Constitution of the Republic of Uganda. B

We have also seen at least four international instruments on human rights which in addition to protecting the right to life expressly prohibit arbitrary deprivation of that right. Article 2(1) of the European Convention, as Miss Korosso properly pointed out, is very articulate: C

`Everyone's right to life shall be protected by law. No one shall be deprived of his life intentionally save in the execution of a sentence of a court following his conviction of a crime for which this penalty is provided by law.' D

The International Covenant on Civil and Political Rights (hereinafter referred to as the International Covenant) provides in art 6(1) thus:

`Every human being has the inherent right to life. This right shall be protected by law. No one E shall be arbitrarily deprived of his life.'

The African Charter in art 4 and art 4(1) of the American Convention on Human Rights (hereinafter referred to as the American Convention) provide very much like art 6(1) of the International Covenant. F

The result of our survey is that the international instruments declare the inherent and universal right to life, demand that right be protected by law and prohibit the arbitrary deprivation of that right. That means the right can be denied by due process of law. The six domestic constitutions which we have been able to obtain, G on the other hand, presume the existence of the inherent and universal right to life and its protection by law. The constitutions deal with when a person can be deprived of his life.

Article 14 of our Constitution lies in between the two sets. It declares the inherent H and universal right and its protection by the society but then subjects both the right and its protection, to law. That means there can be instances in which the due process of law will deny a person his right to life or its protection. This is why the learned Trial Judge found that the right to life under art 14 is not absolute but qualified, and here we agree with him. I

1995 TLR p110

RAMADHANI JA

A The issue we have to determine is whether the death penalty is one of such instances where the due process of law will deny a person his right to life and its protection.

The first matter which we have to address ourselves is whether the death penalty contravenes art 13(6)(d) and (e).

The relevant part of art 13(6)(d) provides as follows: B

`(6) kwa madhumuni ya kuhakikisha usawa mbele ya sheria, Mamlaka ya Nchi itaweka taratibu zinazofaa au zinazo-zingatia misingi kwamba -

(a) ...

(b) ... C

(c) ...

(d) kwa ajili ya kuhifadhi haki ya usawa wa binadamu, heshima ya mtu itatunzwa ... katika kuhakikisha utekelezaji wa adhabu;'

D Very briefly we can say that art 13(6)(d) seeks to protect the dignity of a person in the execution of a punishment.

Paragraph (e) of clause (6) of art 13 provides as follows:

`(e) ni marufuku kwa mtu kuteswa, kuadhibiwa kinyama au kupewa adhabu zinazomtweza au kumdhalilisha.' E

Here again the English version is faulty and we propose to use the following translation:

`(e) it is prohibited to torture a person, to subject a person to inhuman punishment or to degrading punishment.' F

The total effect of the two above-quoted paragraphs is that three things are prohibited: torture, inhuman punishments and degrading punishments. In addition, the punishments which are not prohibited have to be executed in such a way as to protect the dignity of a person. Does the death penalty offend any of these? G

Torture has been defined by the United National General Assembly (UNGA) in its unanimously adopted `Declaration on the Protection of All Persons from being Subjected to Torture and Other Cruel, Inhuman or Degrading Treatment or H Punishment' of 9 December, 1975 (Resolution 3542 (XXX)):

`Torture means any act by which severe pain or suffering, whether physical or mental, is intentionally inflicted by or at the instigation of a public official on a person for such purposes as obtaining from him or a third person information or confession, punishing him for an act I

he has committed, or intimidating him or other persons. It does not include pain or suffering A arising only from, inherent in or accidental to, lawful sanctions ...' (Emphasis provided)

Forgetting for the moment, whether or not the death penalty is a lawful sanction, it is clear that any physical or severe mental pain or suffering brought about by the death penalty, does not constitute torture. We understand that a similar exception B is contained in the definition of torture in the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment a copy of which we have not been able to obtain. C

There is no doubt that there is a lot of severe mental pain and suffering to a person under the sentence of death from the moment that sentence is pronounced to the date of its execution. It has been amply stated that this span of time is tormentingly too long. We do not share the sentiments of Miss Korosso that the delay is a blessing in disguise to the condemned prisoners. In the present world of D anesthesia, both local and general, and pain killers the mental state of the condemned prisoners cannot be anything but in much agony. It is quite common that the blood pressure of a patient awaiting operation shoots up even though the patient is not ordinarily hypertensive. This is because the possibility of death is E encapsulated in the pending operation, though the patient is fully aware that the operation is for his own good. How much so is it to a condemned prisoner who stands to gain nothing from hanging? Is this not torture? F

We humbly agree with the learned Trial Judge that concepts like torture, cruel, inhuman and degrading `are subject to evolving standards of decency'. We agree with the United States Supreme Court in Trop v Dulles (12) when it held that the Eight Amendment must draw its meaning from the evolving standards of decency that mark the progress of a maturing society. We also share the feelings of the G European Court of Human Rights in Tyrer v United Kingdom (13) that the European Convention is a living instrument which must be interpreted in the light of present-day conditions. We add that human rights concepts and terms like torture, inhuman and degrading punishment or treatment, have to be interpreted in the light of present-day conditions. H

It is our opinion that death penalty has elements of torture. Whereas all punishments, as Miss Korosso submitted, might be cruel, it is the degree of cruelty that matters. As for the other aspects prohibited by art 13(6)(e) of inhuman and degrading pun- I
1995 TLR p112
RAMADHANI JA
A ishments, we agree with the decisions of other jurisdictions that the death penalty offends these. One such decision is of the United States Supreme Court in Furman v Georgia (14) where Brennan, J said at 367 that the State, even as it punishes, must treat its members with respect for their intrinsic worth as human beings. He warned that members of the human race should not be treated as B non-humans, as objects to be toyed with and discarded.
To him, even the vilest criminal remained a human being possessed of common human dignity.
C The execution of the death penalty too, that is, hanging, is inhuman and degrading. We do not agree with the learned Trial Judge that hangings being conducted in private indicates the guilty conscience of the State. We are, however, of the opinion that the privacy surrounding executions is a recognition that hangings are inhuman and degrading and so are done in such a way as to give some semblance of dignity and respect to the prisoner. D
So, we agree with the learned Trial Judge that death penalty is inherently inhuman, cruel and degrading punishment and that it is also so in its execution and that it offends art 13(6)(d) and (e). But the crucial matter is: is it saved by art 30(2)?
That article provides: E

`(2) It is hereby declared that no provision contained in this part of this Constitution, which stipulates the basic human rights, freedom and duties, shall be construed as invalidating any existing law or prohibiting the enactment of any law or the doing of any lawful act under such law, making provision for - F

(a) ensuring that the rights and freedom of other or the public interest are not prejudiced by the misuse of the individual rights and freedom;

(b) ...

G (c) ensuring the execution of the judgment or order of a court given or made in any civil or criminal proceedings.'

This court has on two occasions dealt with art 30(2); in Daudi Pete v A--G (11) and also in Kukutia Ole Pumbun v A--G (15). In the latter case we said: H

' - the Court in Pete's case laid down that a law which seeks to limit or derogate from the basic right of the individual on ground of public interest will be saved by art 30(2) of the Constitution only if it satisfies two essential requirements: First, such law must be lawful in the sense that it is not arbitrary. It should make adequate safeguards against arbitrary decisions, and provide effective controls against I
1995 TLR p113
RAMADHANI JA

abuse by those in authority when using the law. Secondly, the limitation imposed by such law A must not be more than is reasonably necessary to achieve the legitimate object. This is what is also known as the principle of proportionality. The principle requires that such law

must not be drafted too widely so as to net everyone including even the untargeted members of the society. If the law which infringes a basic right does not meet both requirements, such law is not saved by art 30(2) of the Constitution, it is null and void. And any law that seeks to B limit fundamental rights of the individual must be construed strictly to make sure that it conforms with those requirements, otherwise the guaranteed rights under the Constitution may easily be rendered meaningless by the use of the derogative or clawback clauses of that very same Constitution.' C

We have found it necessary to quote at length what we have said because we feel that the learned Trial Judge seems not to have fully grasped its import. We have said that art 30(2) allows derogation from basic rights of the individual in public D interest. Whether or not legislation which derogates from a basic right of an individual is in public interest depends on first, its lawfulness, that is, it should not be arbitrary and second, on the proportionality test, that is, the limitation imposed should not be more than reasonably necessary.

The learned Trial Judge dealt with art 30(2) in Part IV of his judgment entitled in E capitals: `WHETHER THE LAW PRESCRIBING THE DEATH PENALTY IS LAWFUL LAW AND IS IN PUBLIC INTEREST UNDER ART 30(2) OF THE CONSTITUTION'. The lawfulness of the law prescribing the death penalty F according to Kukutia, is one ingredient of whether it is in the public interest and is not an additional matter to public interest. Then, the learned Trial Judge divided his Part IV of the judgment into `A: Whether the death penalty is in public interest under art 30(2) of the Constitution' and `B: Whether the Law Prescribing the death penalty is lawful law.' The two sub-headings should have been on arbitrariness and proportionality. G

Is s 197 of the Penal Code, the one providing for death penalty, lawful law, that is, not arbitrary? The learned Trial Judge found s 197 to be arbitrary on two grounds. First, the state H of our criminal law is such that `real murders and mentally sick are indiscriminately dumped together as murderers without distinction'. The learned Trial Judge gave three cases in which `famous psychiatrists' or `prominent psychiatrists' testified to the mental disease of the accused persons, yet they were sentenced to death. He cited Said Mwamwindi v R (16) the disease I

A being catatonic schizophrenia; R v Asha Mkwizu Hauli (17), and DPP v Lenganzo Nyanje (18) where the respondent had paranoid schizophrenia. The learned Trial Judge categorically indicated that Mwamwindi was executed but he did not do so with respect to Asha and Nyanje.

B Then the learned Trial Judge complained of the requirement under s 325 of the Criminal Procedure Act, 1985 whereby in the case of the death penalty, the court record is sent to the President for the exercise of pardon. The learned Trial Judge said the procedure is arbitrary as the President is neither bound to follow the recommendations of the judge who tried the case nor of the advisory committee. C

In Kukutia we went on to explain what we meant by arbitrary. We said that the law under investigation `should make adequate safeguards against arbitrary decisions, and provide effective controls against abuse by those in authority when using the law'. D

Chambers 20th Century Dictionary defines arbitrary as `not bound by rules: despotic, absolute: Capricious: arising from accident rather than from rule'.

Does s 197 of the Penal Code fall under that definition? That section provides: E

`Any person convicted of murder shall be sentenced to death'

There then follows a proviso which exempts pregnant women. So, only those F persons convicted or murder are subjected to death under this section. (We may add that also those convicted of treason are subjected to death under s 39 of the Penal Code).

We agree with Miss Korosso that for a person to be convicted of murder he must have undergone a full trial by the High Court sitting with assessors and with the assistance of a prosecuting State Attorney and a defence counsel. Then, by G practice, there is an automatic appeal to this court. That can never be despotic.

Our law is that it is the court which makes decisions and all others, however qualified in their callings, give evidence and offer opinions which the court, for stated reasons, may or may not accept as factual and rely upon. Insanity is defined in s 13 of the Penal Code and anything short of that will not benefit an H accused person. Our law does not provide for diminished responsibility. That may be unfortunate but definitely not arbitrary because the court arrives at its decisions following rules and not accidentally.

It is possible that an innocent person may be executed in error. I

1995 TLR p115

RAMADHANI JA

But that will not be arbitrary. Either both the trial court and the appeal court were A genuinely mistaken or fraud was committed on them. But our law provides safeguards, for instance, in the case of doubt then the accused person should be benefit.

The Presidential pardon is outside the court process and helps to put a human touch on the rigors of the law. Admittedly, the President is not bound by the B recommendations of either the Trial Judge or the advisory committee but that does not enable him to abuse the law for he cannot make matters any worse for the condemned prisoner.

In fact s 197 cannot be arbitrary because it merely provides punishment to a C person convicted under other provisions of law.

Is the death penalty in conformity with the principle of proportionality? Is the limitation imposed not more than is reasonably necessary to achieve the legitimate object? Maybe, but what is the legitimate object? D

Section 197 provides for death to a person who has been proved to have killed another or others, with malice aforethought, that is, without any excuse recognized by law. So, the legitimate object of the law is to protect the society from such killings. Article 14 gives members of the society a right to life and requires the E society to protect this right. So, the society has the constitutional duty to ensure that its law abiding members are not deprived of this right. The society cannot provide personal body-guards for indefinite periods even to individuals whose lives may be threatened, and that is not expected of the society to do. So, the society cannot make it difficult or prevent one person killing another. The society can only F discharge its

duty of protecting the right to life by deterring persons from killing others. Tanzania, like many other societies, has decided to do so through the death penalty.

There is a question of retribution. But that to our minds is between the murderer G and the relatives of the victim. For the purposes of the society to perform its duty under art 14 deterrence is the legitimate object.

Is the death penalty more than necessary to deter from killing others? H

We know that in certain jurisdictions death penalty has been held not to be necessary either to deter the commission of capital crimes or to protect society (Furman v Georgia referred to supra). However, it is our decided opinion that what measures are necessary to deter the commission of capital crimes or to protect society are matters for decision by every individual in society. I

1995 TLR p116

RAMADHANI JA

A We agree with the learned Trial Judge in the third principle which guided him in deciding this case that court decisions of other countries provide valuable information and guidance in interpreting the basic human rights in our Constitution. That is what we have done following Furham v Georgia in finding that death penalty is inhuman, cruel and degrading punishment. But when it comes to what is B reasonably necessary to protect our society we have to be extra careful with judicial decisions of other jurisdictions.

In societies where owning a firearm is almost as simple as owning a penknife, the death penalty might not be necessary to protect the public. But in societies like C ours, where people go to the extent of sacrificing dear sleep to join vigilante groups, popularly known as Sungusungu, in order to protect life and property, the death penalty may still be reasonably necessary.

We can do no better than quote the learned Trial Judge himself on this matter. He said: D

> `I concede that there may be a majority of Tanzanians who support the death penalty blindly, and these are not enlightened and not initiated or aware of the ugly aspects of the death penalty. Apparently it is so because the death penalty is carried out in secrecy. The E government must assume responsibility for ensuring that their citizens are placed in a position whereunder they are able to base their views about the death penalty on a rational and properly informed assessment. It is clear that many people base their support for the penalty on an erroneous belief that capital punishment is the most effective deterrent F punishment, and so the government has a duty to put the true facts before them instead of holding out to the public that the death penalty is an instant solution to violent crime. If many people, like members of the Myajali Commission see the death penalty as being morally insupportable and as having many negative effects, they would be expected to inform the public about their views and seek to influence public opinion in a more enlightened direction. The government should do the same.' G

Three things come out of the above quoted passage. One, the death penalty has H ugly aspects and is morally insupportable. Two, the death penalty is not the most effective punishment. Lastly, most people support it out of ignorance of the first two matters and ought to be enlightened.

As for the first matter, there is no question. We have already made a finding that the death penalty is cruel, inhuman and degrading. There is no conclusive proof one way or the other regarding the I
1995 TLR p117
RAMADHANI JA
second matter that the death penalty is not the most effective punishment. It is A common knowledge that after Said Mwamwindi was executed in early 1970s there were no more hangings until the present administration came into power in 1985. Why were executions resumed? No research on this has been conducted in Tanzania. As for influencing public opinion against the death penalty, all we can say is that that is perfectly legitimate in a democracy. B
But the crucial question is whether or not the death penalty is reasonably necessary to protect the right to life. For this we say it is society which decides. The learned Trial Judge in the above quoted passage acknowledges that presently society deems the death penalty as reasonably necessary. C
So, we find that though the death penalty as provided by s 197 of the Penal Code Offends art 13(6)(a) and (e) it is not arbitrary, hence a lawful law, and it is reasonably necessary and it is thus saved by art 30(2). Therefore it is not unconstitutional. D
We may observe here that we are aware of the drive to abolish the death penalty worldwide. But that has to be done, as the learned Trial Judge has aptly put it, by deliberate moves `to influence public opinion in a more enlightened direction'. For the present, even international instruments still provide for the death penalty. E
It may not be out of place to quote Paul Sieghart in The International Law of Human Rights (Oxford University Press) 1983 at p 130.

`As human rights can only attach to living human beings, one might expect the right to life itself F to be in some sense primary, since none of the other rights would have any value or utility without it. But the international instruments do not in fact accord it any formal primacy: on the contrary ... contain qualifications rendering the right less than absolute, and allowing human life to be deliberately terminated in certain specified cases ... The right to life thus stands in G marked contrast to some of the other rights protected by the same instruments: for example, the freedom from torture and other ill-treatment ... and the freedom from slavery and servitude ... are both absolute, and subject to no exceptions of any kind. It may therefore be said that international human rights law assigns a higher value to the quality of living as a process, than to the existence of life as a state ... the law tends to regard acute or prolonged suffering (at all H events in cases where it is inflicted by others, and so it is potentially avoidable) as a greater evil than death, which is ultimately unavoidable for everyone.
Before we finish, we commend the learned Trial Judge for his I
1995 TLR p118
RAMADHANI JA
A unexcelled industry in his exploration of the human rights literature. However, we would also like to point out that the style he has used in writing the judgment, dividing it into parts and

sections, with headings and sub-headings, is unusual. That style is more suited for a thesis than for a judgment.

B Both appeals are allowed. The conviction or murder is quashed and the sentence of life imprisonment is set aside. The striking out of the death penalty is also quashed and that penalty is declared constitutional. C

1995 TLR p118

D

[zRPz]NICODEMUS NYAMBUYA v HAMISI RAMADHANI 1995 TLR 118 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J E

(PC) Civil Appeal No 7 of 1994
January 31, 1995
Flynote

F Tort - Malicious prosecution - Whether ingredients of tort in common law is the same as in customary law.

Customary law - Tort - Malicious Prosecution - Ingredients of the tort.

-Headnote

G In this appeal the High Court considered whether the ingredients of the common law tort of malicious prosecution are also the ingredients under customary law.

Held:

(i) Under s 37(3)(a) of the Magistrates' Courts Act, 1984, the High Court is duty bound to take judicial notice of what the Trial Court found to be the ingredients of a particular tort;

H (ii) According to the record of the Trial Court malice is not an ingredient of the tort of malicious prosecution; it is enough if the defendant had no reasonable and probable cause to prosecute the plaintiff;

(iii) The Trial Court correctly found as a fact that the defendant had no reasonable and probable cause to prosecute the plaintiff.

Case Infomation

Appeal dismissed. I

1995 TLR p119

MWALUSANYA J

Case referred to: A

(1) Hosea Lalata v. Gibson Marasote [1980] TLR 154

Mbezi for the respondent

[zJDz]Judgment

Mwalusanya, J: B

The appellant Nicodemus s/o Nyambuya was successfully sued by the respondent Hamisi s/o Ramadhani for a tort of malicious prosecution at Kintinku Primary Court in Nanyoni District and was condemned to pay Shs 300,000/= as damages. His appeal to Manyoni District Court was dismissed but the damages were reduced to Shs 150,000/=. He is now making a second appeal to this court.

His main ground of appeal is that the ingredients of the tort of malicious prosecution were not proved. He contends that it was not proved that he was actuated by malice and that it was not proved that he acted without reasonable and probable cause.

The suit was filed under customary law of the Wagogo and Wanubi of Nanyoni District which is similar. Unfortunately the learned District Magistrate thought the ingredients of the tort of malicious prosecution are the same under the English common law and under customary law. That is why the learned District Magistrate cited the ingredients of the tort of malicious prosecution under English common law as expounded by Samatta J (as he then was) in the case of Hosea Lalata v Gibson Mwasoto (1). The learned District Magistrate was clearly in error.

However counsel for the respondent Mr Mbesi has contended that the ingredients of the tort of malicious prosecution under the English Common Law and under Customary Law are almost similar.

My view is that the ingredients of the tort of malicious prosecution under the relevant customary law has to be gathered from the record of the trial court. Under s 37(3)(a) of the Magistrate's Court Act No 2 of 1984, this court is duty bound to take judicial notice of what the trial court found to be the ingredients of a particular tort. According to the record of the trial court, malice is not ingredient of the tort of malicious prosecution. The record shows that it is enough if the defendant had no reasonable and probable cause to prosecute the plaintiff. Here the trial court found as a fact that the defendant had no reasonable and probable cause to prosecute the plaintiff. The defendant instead of leaving it to the police to investigate if the spare parts of a milling machine found with the

plaintiff were those stolen from the milling machine of the defendant's village, went out of his way to tell the police that the plaintiff was the thief and should be arrested. The defendant insisted the arrest of the plaintiff even when he was shown the spare parts found with the plaintiff to be of Lister milling machine while the stolen spare parts were of Raslon milling machine. With that evidence indeed the defendant had no reasonable and probable cause to prosecute the plaintiff.

While I am doubtful if the defendant had any malice, I am satisfied that the trial court was correct to hold that he had no reasonable and probable cause to prosecute the plaintiff.

The appellant has not appealed against the quantum of damages of Shs 150,000/= as awarded by the District Court. I find it to be a reasonable award and so I will not interfere with it.

In the event the appeal fails and it is dismissed with costs. Order accordingly.

[zRPz]MAKUPILA CHALO v MNINDA MDAMA 1995 TLR 120 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J F

(PC) (Civil Appeal 126 of 1993)
February 22, 1995
Flynote
G Customary Law - Brideprice - Refund of - Principles governing refund - Customary Law Declaration Order GN No 279 of 1963.
-Headnote
This case concerned refund of brideprice. On appeal the High Court restated the guidelines for deciding on the quantum of refund of brideprice. H
Held:
(i) The Customary Law Declaration Order GN No 279 of 1963 paras 52, 53, 54 and 55 contain principles which provide for guidelines for deciding on the quantum of refund of brideprice;
(ii) Since the marriage subsisted for about 10 years and was blessed with 5 children, though two of them have died, refundable brideprice could I
1995 TLR p121
MWALUSANYA J
have been considerably reduced; A
(ii) The Trial Court should have somewhat increased the refundable brideprice because the wife was the guilty party responsible for the divorce.
Case Infomation
Appealed allowed in part.
No case referred to. B
Mbezi for the appellant
[zJDz]Judgment
Mwalusanya, J:
The respondent Mninda s/o Mdama successfully sued the appellant Makupila s/o C Chalo at Hager Primary Court in Mpwapwa District in a claim of refund of brideprice. The respondent was awarded all the brideprice that he paid on marrying the appellant's daughter and there were 10 head of cattle, five goats and cash Shs 556/=. The appellant's first appeal to Mpwapwa District court was unsuccessful and hence this appeal. D
Both court's below erred in failing to adhere to principles regarding refund of brideprice. These principles are contained in para 52, 53, 54 and 55 of the Customary Law Declaration GN: No 279 of 1963. These principle provide that: E
1. If children have been born, even if some have died, the brideprice to be refunded should be reduced or not paid at all.

2. If the marriage has subsisted for a considerable period, the refundable brideprice should be reduced or not paid at all.
3. If the wife is the guilty party responsible for the divence, the refundable F brideprice should be substantial, but if the guilty party is the husband, the refundable brideprice should be considerably reduced.
These are the guidelines for a case concerning refund of brideprice. The trial court G did not mention these principles at all. The District Court quoted para 58 which is a wrong section, because that section does not concern the exercise of the discretion by the court in assessing the refundable brideprice. The correct section or para is 53 which says that the court has the power to increase or reduce the refundable brideprice depending who is guilty party, the husband or the wife. H
At the District Court and at this court counsel for the appellant Mr Mbezi submitted that the marriage subsisted for about ten years and that the marriage was blessed with five children though two have died. The respondent does not appear on record as the Dis- I
1995 TLR p122
MWALUSANYA J
A trict Court to have had challenged that submission. That being the case the refundable brideprice should have been considerably reduced. At the same time the trial court should have somewhat increased the refundable brideprice because the wife was the guilty party responsible for the divorce.
B Taking all the circumstances mentioned above into account, I assess the refundable brideprice at 5 head of cattle, 2 goats and Shs 250/=. That appears a fair amount in the circumstances of this case.
In that the appeal is partly allowed to the extent indicated above, each party will bear its own costs of this appeal. Order accordingly. C
1995 TLR p122
D
[zRPz]BONIFACE JEREMIAH v STEPHEN LUKUMAY 1995 TLR 122 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J E

(DC) CiVil Appeal No 30 of 1994
February 24, 1995
Flynote
F Evidence - Admissibility - Unstamped document - Issue of admissibility of unstamped document raised on appeal - Whether proper.
-Headnote
The respondent successfully sued the appellant in a District Court. The District G Court vested a house which had been mortgaged as security for a money claim unto the respondent. The

mortgage deed was not stamped. Counsel for the appellant raised the question of admissibility in evidence of the unstamped document on appeal.
Held: The question of admissibility of an unstamped document cannot be raised on appeal but only at the trial.
Case Infomation
H Appeal dismissed.
Cases referred to:
(1) Sunderji Nanji v Bhaloo [1958] EA 762
Mbezi for the appellant.
Rweyongeza for the respondent. I
1995 TLR p123
MWALUSANYA J
[zJDz]Judgment
Mwalusanya J: A
The appellant Boniface s/o Jeremiah was successfully sued by the respondent Stephen s/o Lakumay at Dodoma District Court in a claim of Shs 195,500/= less Shs 82,500/= that has been paid. The District Court vested the house of appellant onto the respondent's ownership as alternatively prayed by the respondent, and that happened because appellant had mortgaged his house for the debt in B question. The appellant through his advocate Mr Mbezi is appealing to this court. The appeal was resisted by Mr Rweyongeza the respondent's counsel.
One of the points raised by Mr Mbezi in the Petition of Appeal is that the Trial C Magistrate was wrong to hold that the appellant had pledged his house to the respondent because that finding was based on inadmissible evidence that is the unstamped document. It is true that the said document is unstamped as required by s 46(1) of the Stamp Duty Act No 20 of 1972. However this argument as D contended by Mr Rweyongeza is of no avail, as that point should have been raised at the trial and not on appeal. As held by this court in the case of Sunderji Nanji v Bhaloo (1) the question of admissibility of an unstamped document cannot be raised on appeal but only at the trial. This is so that the other party can be given an opportunity of paying the requisite duty and thus making it admissible. E Therefore on the authority cited above I find that the finding of the Trial Magistrate about the mortgage cannot be impeached now.
The other point raised by the appellants' counsel is that the Trial Magistrate F abused his discretion or rather did not exercise his discretion judiciously by vesting the ownership onto the respondent instead of giving time to the appellant to pay the decretal amount. It is true that in the plaint the respondent prayed judgment for Shs 123,500/= or in the alternative to vest the ownership of the defendant's house to him. He said that to vest the ownership of the house for a debt of Shs 41,000/= was quite unfair. However I note that the outstanding debt then was Shs 111,000/= G and not Shs 41,000/= if you take into account a further loan of Shs 50,000/= and interest of Shs 20,000/= which has been mentioned by the Trial Magistrate in his judgment. He also said that when the house was valued in July 1994 it was found to be worthy Shs 6.6 million. The judgment was passed on 1 December 1989. H

On his part counsel for the respondent Mr Rweyongeza submitted that the valuation of the house was done in July 1994 while the suit was filed in 1986 and so it was done some eight years later when the I

1995 TLR p124

MWALUSANYA J

A house had appreciated in value. He said that the value of that house in 1986 or 1989 was quite low. And he also said that as disclosed in the judgment of the trial court the value of the time of oil which were Shs 1400/= per tin in 1985, was in 1989 Shs 4,500/= per tin. So he said that the debt was in 1989 over Shs 300,000/=. It was for this reason that Mr Rweyongeza contended that the Trial B Magistrate exercised his discretion judiciously.

I have seen the mortgage document dated 16 August 1985 which states that if the appellant does not discharge the debt of Shs 123,500/= by 31 October 1985 then respondent could have the house. For sure Shs 123,000/=in 1985 was a big sum. C And due to inflation I am sure by 1989 when the case was decided, the value of the money had been considerably devalued. Therefore the valuation of Shs 6.6 million done in July 1994 is of not much relevancy about the value of the house as it was in 1985. The value of the house was definitely much less in 1985. Due to devaluation the debt of Shs 123,500/= in 1985 could have gone up to Shs D 300,000/= by 1989. And the value of the house in 1989 could have been in the region of Shs 300,000/=. Taking into account the fact that the appellant was impecunious with no money to pay, I find that the Trial Magistrate did exercise his E discretion judiciously. I am unable to say that he abused his discretion.

Was this a foreclosure suit, so that the appellant should have been given time to pay the debt before the house was vested onto the respondent? For a foreclosure suit under Order 32 rule 2(c) of the Civil Procedure Code 1966, the defendant has F to be given time of six months within which to pay, before the vesting order is granted. However Mr Rweyongeza has contended that this was not a foreclosure suit but an ordinary suit and so the above cited provision is not applicable. I agree with the respondents' counsel that this was an ordinary suit for the recovery of G debt. And so the above provision is not applicable.

In the event this appeal fails and it is dismissed with costs. Order accordingly. H

1995 TLR p125

A

[zRPz]VIDYADHAR GIRDHARAL CHAVDA v THE DIRECTOR OF IMMIGRATION SERVICES AND OTHERS 1995 TLR 125 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Samatta JK B

Misc Civil Cause No 5 of 1995 C

March 7, 1995

Flynote

Administrative Law - Prerogative orders - Ad-interim injunctive orders pending hearing application for leave - Whether court may grant ad-interim injunctive order before granting leave to apply for prerogative orders.
Administrative Law - Injunctive orders against the Government - Whether the High court has power to grant injunctive orders against the Government, its ministers or officials - Section 11 of the Government Proceedings Act 1967. D
-Headnote
In this application the High Court considered, inter alia, whether it has power to E grant an injunction against the Government, a government minister or official in the light of the provisions of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Act 1968 as amended by the Written Laws (Miscellaneous Amendments) (No 3) Act 1991 and s 11 of the Government Proceedings Act, 1967. In particular the Court considered whether the term 'civil proceedings' as defined in s 2(1) of the Government Proceedings Act includes an application for an F order of injunction against the Government, government minister or official.
Held:

(i) The term 'civil proceedings' was intended to have a restricted meaning; it was intended to mean civil matters as understood in the traditional sense of the term, that is to say, civil matters that are dealt with under the High G court's general civil jurisdiction;

(ii) Any statutory provision which purports to restrict this Court's jurisdiction, including inherent jurisdiction, must in the interest of everyone, be construed strictly;

(iii) The application of that principle in the interpretation of s 11 of the H Government Proceedings Act compels the holding that the term 'civil proceedings' in the subsection does not embrace proceedings for prerogative orders;

(iv) The prohibition imposed by ss (2) of s 11 of the Government Proceedings Act was not intended to, and does not, extend to an application in which the relief sought is injunction itself; I
1995 TLR p126
SAMATTA JK

A (v) the High Court has power to grant an interlocutory injunction before hearing application for leave to apply for a prerogative order.
Case Infomation
Order accordingly
Cases referred to:
B (1) M v Home Office [1993] 3 WLR 433
(2) R v Bishop of Oxford [1879] 4 QBD 245
Mkono for the applicant.
Mallaba for the respondents.
[zJDz]Judgment
C Samatta, JK:

In this application, an issue of novelty and great importance arises, namely whether this court has the power to grant an injuction against the Government, a government minister or official. The issue has arisen in this way. The applicant is engaged in a legal battle against a deportation order made against him by the D second respondent, who is Minister for Home Affairs, under the Immigration Act. On 2 February 1995, he filed before this Court an application against the Director of Immigration Services (the first respondent), the second respondent and the E Attorney General, who was made a party to the proceedings in compliance with s 17 of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Act, 1968, as amended by the Written Laws (Miscellaneous Amendments) (No 3) Act, 1991, for two reliefs, namely; (1) leave to apply for order of certiorari, mandamus and prohibition, and (2) an injunction (in the Chamber summons the F word used is prohibition) restraining the first two respondents, pending the disposal of the prior application from detaining or deporting him for reasons which need not be given here. The application for injunctive relief was heard a day before the application for leave was heard. Mallaba, Senior State Attorney, appearing for G all three respondents, strongly opposed the application (for injunction) contending that this Court, before granting leave to apply for certiorari, mandamus or prohibition, has no power to grant an interim order. I rejected the argument and H made an order restraining the first and second respondents, pending the hearing of the application for injunctive relief, from detaining or deporting the applicant.

When, six days later, the application for interlocutory injunction was called on, Mr Mallaba raised a point in limine. He contended, citing s 11 of the Government Proceedings Act, 1967 (the Act), that this Court has no power to make an injunctive order against the I

Government, its ministers or officials. According to the learned Senior State A Attorney what the Court can do in circumstances in which the parties are private persons is grant injunctive orders, or to make an order declaratory of the rights of the parties. Section 11 of the Act reads:

11. (1) In any civil proceedings by or against the Government the court shall, subject to the B provisions of this Act, have power to make all such orders as it has power to make in proceedings between private persons, and otherwise to give such appropriate relief as the case may require:

Provided that - C

(a) Where in any proceedings against the Government any such relief is sought as might in proceedings between private persons be granted by way of injunction or specific performance, the court shall not grant an injunction or make an order for specific performance, but may in lieu thereof make an order declaratory of the rights of the parties; and D

(b) in any proceedings against the Government for the recovery of land or other property the court shall not make an order for the recovery of the land or the delivery of the property, but may in lieu thereof make an order declaring that the plaintiff is entitled as against the Government to the land or property or to the possession thereof. E

(2) The court shall not in any civil proceedings grant any injunction or make any order against an officer of the Government if the effect of granting the injunction or making the order would be to give any relief against the Government which could not have been obtained in proceedings against the Government. F

The term 'civil proceedings' is defined in s 2(1) of the Act as including proceedings in this court or a magistrate's court for the recovery of fines or penalties, and the phrase 'proceedings against the Government' is defined by the same subsection G as including a claim by way of set-off or counterclaim raised in proceedings by the Government. Mr Mkono, for the applicant, sought to counter Mr Mallaba's argument by contending that s 11 of the Act has no application where s 30 of the Constitution of the United Republic (constitution) is applicable. It was the learned H advocate's contention that the constitutional provision is applicable to the instant application. He drew my attention, citing M v Home Office (1) that in spite of the fact that s 21 of the Crown Proceedings Act, 1941, contains prohibitions identical with these imposed by s 11 of the Act, the House of Lords decided, in the cited case, that courts in England have the power to issue coercive orders, including injunctions, I

A against a government minister or department. Section 11 of the Act and s 21 of the English legislation are, save for the use of the words 'Crown' and 'subjects' instead of 'Government' and 'private persons', respectively, in pari materia with s 30 of the Constitution which deals with limitations upon and the enforcement and protection of basic rights and duties. B

It cannot be doubted that Mr Mallaba's preliminary point raises an issue of considerable importance on the enforcement by this court of the provisions of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance (Amendment) Act, 1968, the legislation which confers on this court the power to C grant prerogative orders. While I find Mr Mkono's argument concerning s 30 of the Constitution very interesting, I do not find it necessary, in law, to determine Mr Mallaba's preliminary point on constitutional grounds. I think the point can be adequately dealt with on non-constitutional grounds. It is a rule of constitutional D interpretation that if the court can decide a case before it on non-constitutional grounds, that course should be preferred; see The Guide to American Law, at 375. I proceed, therefore, to consider the merits or otherwise of the non-constitutional contentions addressed to me.

E The decision of the House of Lords in M v Home Office, supra, demonstrates, I respectfully think, the modern approach of courts towards their (courts) duty to control government actions and omissions which affect the freedoms and rights of the individual. The complex facts of the case are accurately summarised by the learned authors of Cases and Materials on Constitutional and Administrative Law 3rd ed at 197-198. I gratefully adopt that summary: F

'M, a citizen of Zaire, arrived in the UK seeking political asylum. The Home Office rejected his application and ordered his removal from the UK, which was to take place by 6.30 p.m. on 1 May 1991. At 5.20 p.m. (after the Court of Appeal had refused an application for leave to apply G for judicial review of the decision) a fresh application for leave to apply to move for judicial review, alleging new grounds, was made to Garland J in chambers. Garland J indicated at

about 5.30 p.m. that he wished his departure to be postponed pending consideration of the application, and he understood from counsel for the Home Office that an undertaking to that H effect had been given. (Counsel understood that he had only undertaken to endeavour to prevent M's removal.) Due to bungling and breakdown in lines of communication, M's departure was not prevented nor was he removed from the onward flight to Zaire during a stopover at Paris. At 11.20 p.m. Garland J, being informed of M's removal from the jurisdiction, made an ex parte order I

requiring the Home Secretary to procure the return of M to the jurisdiction and granting the A Home Secretary the liberty to apply for variation or discharge of the order on the morning of 2 May. Home Office officials then made arrangements for M's return. On the afternoon of 2 May, the Home Secretary, having taken advice from his officials and Treasury Counsel, concluded that the underlying asylum decision had been correct and that Garland J's ex parte order, B being a mandatory interim injunction against a minister of the Crown, had been made without jurisdiction. Thereupon he cancelled the arrangements for M's return. On 3 May he applied to Garland J to set aside the order of 1 May, which Garland did. Proceedings were then brought on behalf of M against the Home Office and the Home Secretary alleging contempt of court in C respect of the breach of the undertaking and the ex-parte order requiring M's return. Simon Brown J dismissed this motion on the basis that since the Crown's immunity from injunction was preserved by s 21 of the Crown Proceedings Act, 1947, neither it nor its departments, ministers and officials acting in the course of their duties could be impleaded for contempt of court. The applicant appealed'. D

The Court of Appeal, by a majority, allowed the appeal, holding that Brown J had mistakenly interpreted the law. The original order by Garland J should not have been made as injunctions could not be issued against the Crown. The Court went E on to hold, however, that as the order was binding until set aside, failure to comply with it constituted a contempt. It also held that while the Crown and Governments Departments are not subject to the contempt jurisdiction of the High Court because they are non-persons, Mr Baker, the Home Secretary, was F personally guilty of contempt. The Home Secretary appealed and the applicant cross appealed in respect of his original application against the Home Office. The House of Lords had to decide two issues of constitutional import, namely:

1. Could an injunction be issued against a government minister, and G
2. Could a government minister or department be found to be in contempt of court for failure to comply with an order of court? H

The House answered both issues in the affirmative. Their Lordships founded their decision on two grounds; firstly, on the wording of s 31 of the Supreme Court Act, 1981, which essentially, contains provisions regarding (i) the procedure for applying for prerogative orders of mandamus, prohibition and certiorari, (ii) the powers of the High Court in such applications and (iii) non-prerogative reliefs I

SAMATTA JK

A which may be sought and granted in an application for prerogative orders and (2) on the undesirability of the English law being inconsistent with the Community law on the matter. Their Lordships were of the opinion that s 21(2) of the Crown Proceedings Act, 1947, did not apply to judicial review jurisdiction as that branch of the law was controlled by the Supreme Court Act. In the course of his speech, B Lord Woolf (with who all their Lordships agreed) said, at 456H--C:

'... as in private law proceedings, once the Crown or a body representing the Crown is a party to proceedings, unless some express restriction exists, the Crown, like any other litigant, is liable to have interlocutory orders made against it with which it is required to comply....' C

And at 461 his Lordship said:

D '[the] decision not to amend section 21 (of the Crown Proceedings Act) is not really surprising bearing mind that the exercise in hand related to public law proceedings while section 21 dealt with private or 'civil' law proceedings.'

E In the course of his short speech, Lord Templeman said, at 431:

'My Lords, the argument that there is no power to enforce the law by injunction or contempt proceedings against a Minister in his official capacity would, if upheld, establish the proposition that the executive obey the law as a matter of grace and not as a matter of F necessity, a proposition which would reverse the result of the Civil War. For the reasons given by noble and learned friend, Lord Woolf, and on principle, I am satisfied that injunctions and contempt of court proceedings may be brought against the minister in his official capacity ...'

G What is the legal position here in Tanzania? To that question I now turn my attention. In the scope of the meaning of the words 'civil proceedings' in s 11 of the Act (the Government Proceedings Act, 1967), so wide as to embrace proceedings in which, as in the instant application, a temporary injunctive relief is sought? H Although in the Act there is no provision similar to s 31 of the Supreme Court Act (of England, I am of the settled opinion, bearing in mind the definition of term civil proceedings' in s 2(1) of the Act, and taking into account of the definition of the phrase 'proceedings against the Government' given in the same subsection, that the word 'civil' there has not been used to mean the opposite of I

SAMATTA JK

'criminal'. Thus, constitutional proceedings and proceedings which are instituted A under this Court's supervisory jurisdiction, that is to say, the jurisdiction to supervise statutory and domestic tribunals conferred on the court by s 17(2) of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance (Cap 360) as amended by the Law Reform (Fatal Accidents and Miscellaneous Provisions) B Ordinance (Amendment) Act, 1968, must be held to be excluded by the term. The term was intended to have a restricted meaning; it was intended to mean civil matters as understood in the traditional sense of the term, that is to say, civil matters that are dealt with under this Court's general civil jurisdiction. Any statutory C provision which purports to restrict this courts jurisdiction, including inherent jurisdiction, must, in the interests of everyone living within the territorial boundaries of the United Republic, be

construed strictly. The application of that principle in the interpretation of s 11 of the Act compels me to hold, as I have already indicated, D that the term 'civil proceedings' in the subsection does not embrace prerogative proceedings. In my opinion, s 11 is related to private law litigation only.

Even assuming that the words 'civil proceedings' cover prerogative proceedings, I would still regard Mr Mallaba's contention as untenable in law, because there is E another ground which compels the rejection of that argument. The relief referred to in ss 11(1) of the Act must, in my considered view, be a relief other than an injunction and specific performance. I have not the faintest doubt that to construe the subsection otherwise would make the words 'by way of' therein superfluous. It F is a settled canon of statutory interpretation that a statute should be so construed that, if it can be prevented, no clause, phrase sentence or word shall be superfluous, void or insignificant: See R v Bishop of Oxford (2) at 261. Unless the necessity or intractability of language in a legislation dictates otherwise, it is the G duty of a court to give effect to all words contained in the legislation. I can see no characteristics in ss 11(1). In my opinion, the words 'by way of' are not, and were not intended to be, insignificant in the provision. Those words were intended to, and do, control the meaning to be attached to the word 'relief' preceding them. They have the effect of excluding in intended and specific performance from the H meaning of that word. If the word (relief) were construed to include injunction the subsection would read very oddly, indeed. How can one, I ask, speak of a relief of injunction being granted by way of injunction? Neither to a lawyer not to an expert in English language would that statement make any sense. I refuse to reduce the subsec- I

A tion to the rank of absurdity. In my judgment, the prohibition imposed by the subsection was not intended to, and does not, extent to an application, like the instant one in which the relief sought is injunction itself. I would be skipping the words 'by way of' in the subsection, as the learned Senior State Attorney appears to have done, to hold that the word 'relief' there includes injunction. I can see no B warrant for doing so. On the contrary, I am profoundly convinced that both the law and common sense force one to the view that the use of those words was, as I have already, I hope, sufficiently demonstrated, intended to limit the scope of the meaning of the word 'relief' in the subsection. It is my duty to attach due weight to C the words which Parliament, in its wisdom, has chosen to use. If, in my opinion, Mr Mallaba's argument on the effect of the subsection were right, personal freedoms and rights would have been placed in great jeopardy, as there would be inadequate judicial protection against unlawful conduct on the part of those who D are entrusted with the power of governing this country or determining, non-judicially, the rights of individuals. If that situation were to exist, the rule of law in the country would greatly suffer, with the result that members of the public would be tempted to regard the law as being a series of hazards separating the litigant from justice. The courts must do everything possible under the law to E prevent that wrong impression of the law being formed. The law should be there to promote and not impede justice. In this country, a decision or order of a government minister or official, regardless of his or her rank, cannot

outweigh the law. To borrow the argument of Lord Woolf in his speech in the M case supra (at 445H): F

'... circumstances can occur where it is in the interests both of a person who is subject to powers of government and of the government itself that the courts should be in a position to make an order which clearly sets either what should or what should not be done by the government.' G

Any collision between the freedom of the individual and the security of the State, in any sphere of national life, does not, in my considered opinion, dictate the H acceptance of Mr Mallaba's argument. If the law were as contended by the learned Senior State Attorney, justice would have been wearing a bandage over her eyes as she could not bear to see some of the decisions made in her name in that branch of the law. I can find no reason for believing that Parliament could have intended to create such a situation. I

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SAMATTA JK

Before parting with this application, I should, I think, say a word or two on one A important point. Since overruling Mr Mallaba's objection to this Court granting an injunction pending the hearing of the application for leave to apply for certiorari, mandamus and prohibition on the ground that the court lacked jurisdiction to do so, I have found a passage in the judgment of Lord Woolf in M's case, supra, which if I B may respectfully say so, plainly demonstrates that the High Court in England has the power to grant an interlocutory injunction pending the hearing of an application for leave to apply for judicial review. The passage, at 463--464, reads: C

What has been said so far does not mean that Garland J was necessarily in order in granting the injunction. The injunction was granted before he had given the applicant leave to apply for judicial review. However, in a case of real urgency this was, the fact that leave had not been granted is a mere technicality. It would be undesirable if, in the situation with which Garland J was faced he had been compelled to give leave because he regarded the case as an D appropriate one for an Interim injunction. In the case of civil proceedings there is recognition of the jurisdiction of the court to grant interim injunctions before the issue of a Writ, etc. (See Ord 29, rule (3)) and in an appropriate case there should be taken to be a similar jurisdiction to grant interim injunctions now under Ord. 53. The position is accurately set out in notice 53/1--14/24 to The Supreme Court Practice 1993 where it is stated that: E

'Where the case is so urgent as to justify it, (the judge) could grant an interlocutory injunction or other interim relief pending the hearing of the application for leave to move for judicial review. But if the judge has refused leave to move for judicial review he is functus officio and has no jurisdiction to grant any form of interim relief. The application for an interlocutory injunction or other interim relief could, however, be renewed before the Court of Appeal along with the renewal of the application for leave to move for F judicial review.'

If I may repeat what I ventured to say in my earlier ruling, there is no room for doubt G that this Court has the power to grant an interlocutory injunction before hearing an application for leave to apply for a prerogative order.

For the reasons I have given, I am satisfied that the law, justice and common sense dictate that I uphold Mr Mkono's contention that s 11 of the Government H Proceedings Act does not stand in the applicant's path in the instant application. Except to autocrats, it must be intolerable that, in a democratic society like ours, courts should be impotent to grant a temporary injunction in favor of an individual who complains of unwarranted or oppressive use of statutory powers by a government minister or official. It should be I

1995 TLR p134

SAMATTA JK

A made perfectly clear, I think that this Court can halt the bulldozer of the State before it squashes the right of an individual, company or society.

The preliminary point fails. B

1995 TLR p134

C

[zRPz]MOSES J MWAKIBETE v THE EDITOR - UHURU, SHIRIKA LA MAGAZETI YA CHAMA AND NATIONAL PRINTING CO LTD 1995 TLR 134 (CA)

Court Court of Appeal of Tanzania - Arusha D

Judge Omar JJA, Mnzavas JJA and Mfalila JJA

E AR Civil Application for Revision No 8 of 1994

March 22, 1995

(From the Ruling and Order of the High Court of Tanzania at Arusha, Mkude, J)

Flynote

F Court of Appeal - Jurisdiction - Revisional powers of the Court of Appeal - Whether revisional powers may be invoked as an alternative to the appellate jurisdiction of the Court - Section 2(3) of the Appellate Jurisdiction Act 1979.

-Headnote

The applicant sought to move the Court of Appeal to revise a Ruling of the High G Court. The applicant could appeal against that ruling with the leave of the court. But he chose to apply for Revision instead because he feared that processing and finalising the appeal would take a long time.

Held:

H (i) The revisional powers conferred by s 2(3) of the Appellate Jurisdiction Act 1979 are not meant to be used as an alternative to the appellate jurisdiction of the Court of Appeal; accordingly, unless acting on its own motion, the Court of Appeal cannot be moved to use its revisional powers under s 2(3) of the Act in cases where the applicant has the right of appeal with or without leave and has not exercised that right;

(ii) The Court of Appeal can be moved to use its revisional jurisdiction I

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OMAR JA

under s 2(3) of the Appellate Jurisdiction Act 1979 only where there is no A right of appeal, or where the right of appeal is there but has been blocked by judicial process, and lastly, where the right of appeal existed but was not taken, good and sufficient reasons are given for not having lodged an appeal;

(iii) The applicant in this case had a right to appeal and has not given any B good and sufficient reasons why he did not appeal; therefore he cannot move the Court of Appeal to exercise its revisional jurisdiction.

Case Infomation

Application dismissed.

No case referred to. C

Mahatane for the respondents.

[zJDz]Judgment

Omar, JA delivered the following ruling of the Co:

In this Notice of Motion, the applicant seeks to move this Court to exercise its D revisional jurisdiction to revise the Ruling of the High Court in Civil Case No 9 of 1993 and issue an order to the effect that in so far as the said ruling purports to stay the proceedings in relation thereto, purportedly by virtue of s 8 of the Civil Procedure Code pending the determination of Civil Case No 7 of 1993 be set aside E and that in lieu thereof the trial of the case to proceed to its logical conclusion. The revisional jurisdiction of this Court is provided by the Appellate Jurisdiction (Amendment) Act 17 of 1993 s 2(2) and (3). The jurisdiction in ss (2) is exercised either in the course of hearing an appeal or incidental to an appeal. Subsection (3) enables this Court to call for and examine the record of any proceedings before F the High Court for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, order or any other decision made thereon and as to the regularity of any proceedings in the High Court. The present application must fall within the provisions of ss (3). G

Before proceeding to hear such an application on merits, this court must satisfy itself whether it is being properly moved to exercise its revisional jurisdiction. The revisional powers conferred by ss (3) were not meant to be used as an alternative to the appellate jurisdiction of this court. In the circumstances, this court, unless it H is acting on its own motion, cannot properly be moved to use its revisional powers in ss (3) in cases where the applicant has the right of appeal with or without leave and has not exercised that option. In these circumstances, we asked the applicant whether or not the High Court Ruling he is moving this Court to revise is appealable. He I

A conceded that it is appealable with leave. We agree with him. The next question then was why he did not take that course of action. The applicant replied that he decided to come to this Court by way of revisional proceedings because he feared the length of time it takes to process and finalise an appeal particularly in this case where the judge who is involved was not a resident judge at Arusha. Is this B sufficient reason? Mr Mahatane for the respondents did not think so. In his view all that the applicant is trying to do is to use the revisional jurisdiction of

this Court as an alternative to its appellate jurisdiction and that would be a misuse of its revisional jurisdiction. C

In our view this Court can be moved to use its revisional jurisdiction under ss (3) only in cases where there is no right of appeal or where there is, it has been blocked by judicial process. Lastly where such right exists but was not taken, good and sufficient reasons are given why no appeal was lodged. D

In the present case we agree with Mr Mahatane that the applicant has not given any good and sufficient reasons why he did not appeal. In his own words he decided to invoke the revisional jurisdiction of this Court as an alternative to the appellate jurisdiction because the latter takes too long to process and finalise. But E the revisional jurisdiction of this Court was not meant to short circuit its appellate jurisdiction, in any case the applicant was not entitled to assume that his intended appeal would take longer than necessary and then shape his court of action on that assumption.

For these reasons we are satisfied that the applicant has not established good and sufficient reasons for wanting to move the revisional jurisdiction of this Court. Accordingly we decline to exercise such jurisdiction and dismiss this application with costs. F

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A

[zRPz]AGNES MALODA v RICHARD MHANDO 1995 TLR 137 (HC)

Court High Court of Tanzania - Dodoma

Judge Msoffe J

(PC) Civil Appeal No 11 of 1994 B

April 13, 1995

Flynote

Civil Practice and Procedure - Role of Assessors in Primary Courts - Assessors to be consulted by Magistrate and there is no summing up to assessors - Magistrates Courts (Primary Courts) (Judgment of Court) Rule 1987, GN No 2 of 1988. C

-Headnote

The High Court, on appeal, considered the procedure adopted by a Trial Court in summing up to assessors in contravention to the Magistrates Courts (Primary Courts) (Judgment of Court) Rules 1987 and its consequences. D

Held:

(i) Since assessors are part of the Court the magistrate has to consult with them and when a unanimous decision is reached he prepares a judgment which all of them have to sign or where the decision is not unanimous the majority have to sign; E

(ii) In the instant case the magistrate summed up to the assessors contrary to the express provisions of Rule 3(3) of GN No 2 of 1988.

Case Infomation

Order accordingly.
No case referred to.
Rweyongeza for the appellant.
[zJDz]Judgment
Msoffe, J:
This is a second appeal. It is common ground that way back in 1987 the respondent's son eloped with the appellant's daughter. The son was prosecuted, convicted and sentenced to three months imprisonment. Further to that, the respondent is said to have agreed to pay the 'costs' of that case on behalf of his son and actually paid part of it. When he failed to pay all the costs the appellant attached the respondent's head of cattle. This prompted the respondent to file the case the subject of this appeal. The two lower courts were of the view that there was nothing to be paid by the respondent as he could not pay for his son. In other words he was not, legally speaking, liable to pay for the misdeeds of his son; and so whatever was
1995 TLR p138
MSOFFE J
taken by the appellant in execution of the warrant of attachment should be returned to him. The appellant thinks the respondent is still liable and hence this appeal.
In the memorandum of appeal there are three grounds which were presented and argued by Mr Rweyongeza learned advocate for the appellant. In my judgment though, the 1st ground is enough to dispose off the appeal, it reads:

'1.

THAT, The learned Senior District Magistrate erred in law in upholding a judgment in which the Primary Court Magistrate made a summing up to the assessors.'

A look at the record will show that in summing up to the assessors the Trial Magistrate said somewhere as follows:

'Kwa ufupi napenda kuwajulisha kwamba mzazi halazimiki kumlipia mtoto wake deni lolote analodaiwa au faini yoyote anayetakiwa kuilipa mbele ya Mahakama ila kwa hiari yake.'

After that summing up both assessors were unanimous that the respondent was not duty bound to pay for his son. In saying so the 1st assessor in particular said as follows:

'Iwapori kweli kwamba mzazi, au ndugu yoyote hana lazima ya kumlipia mtoto wake, au ndugu yake, mdai naona anayohaki ya kurudishiwa ng'ombe wake mnoja tu (1) na shs 5,000/= alizolazimishwa kumlipia mtoto wake deni katika madai kati ya huyo mtoto na mdaiwa.' (Emphasis added).

A close look at the above opinion will show that the assessor was heavily influenced or prejudiced by the summing up in issue. In the same way the 2nd assessor was prejudiced. Perhaps both the two lower Courts should have appreciated that the law with regard to the role of assessors in Primary Courts has undergone a fundamental change with the publication of The Magistrates' Courts (Primary Courts) (Judgment of Court) Rules 1987 contained in GN no. 2 of 1988. For case of reference I reproduce below the relevant parts of the rules:

'3 (1) Where in any proceedings the Court has heard all the evidence or matters pertaining to the issue to be determined by

the Court, the magistrate shall proceed to consult with the assessors present with the view of reaching a decision of the Court, A

(2) If all the members of the Court agree on one decision, the magistrate shall proceed to record the decision or judgment of the court which shall be signed by all the members.

(3) For the avoidance of doubt a magistrate shall not, in lieu of or in addition to, the B consultations referred to in sub-rule (1) of this Rule, be entitled to sum up to the other members of the court.

4 (1) Where after consultations in accordance with Rule 3 the issue is determined by the vote of the majority, the magistrate shall proceed to record the decision or judgment of the majority which shall be signed by the assenting members of the court. C

(2) The dissenting member of the court shall give a brief statement specifying findings of fact and the law, his decision on the issue and the reasons for it.

(3) The brief statement referred to in sub rule (2) of this Rule shall be recorded by the magistrate immediately below the decision or judgment of the majority and shall be signed by the dissanting member.' D

It is clear from the above mandatory provisions that since assessors are part of the Court the magistrate has to consult with them and when a decision is reached he prepares a judgment which all of them have to sign in case of unanimous E decision, or the majority sign where the decision is not unanimous. In the instant case the magistrate summed up to assessors contrary to the express provisions of Rule 3(3). As if that was not enough, in the summing up he prejudiced them after which they gave their opinions similar to the ones he owned. The error F unfortunately escaped the attention of the senior (now Principal) District Magistrate who sat on appeal, otherwise he should have revised the proceedings and ordered a new trial.

In the result I hereby quash all the proceedings in the Court below and order that the case be heard de novo in the Primary Court of Mwitikira before another magistrate sitting with different assessors. Costs in this appeal and in the courts below will abide the outcome of the new trial. G

A

[zRPz]KAMANDO CHISIMA v REPUBLIC 1995 TLR 140 (CA)

Court Court of Appeal - Dodoma
Judge Mnzavas JJA, Mfalila JJA and Lubuva JJA

B Criminal Appeal 57 of 1994
24th April, 1995
(From the conviction of the High Court of Tanzania at Dodoma, Ruhumbika, J)
Flynote

C Criminal Practice and Procedure - Appeals - Third appeal - Appellant raises a defence of alibi not raised and considered by second appellate court - Whether there was a point of law to be considered by the third appellate court.

-Headnote

D The appellant was convicted by the Primary Court of robbery. His appeals to the District Court and High Court were unsuccessful. While appealing to the High Court the appellant did not include in his memorandum of appeal the defence of alibi. On further appeal to the Court of Appeal a point of law certified to it was whether failure by the learned judge on second appeal to consider the defence of alibi was fatal. E

Held:

(i) the defence of alibi not being part of the memorandum of appeal filed, there was no basis upon which the learned judge on second appeal could deal with this issue; F

(ii) since a judge on appeal is guided by procedure to deliberate on issues or points raised at the appropriate time through the memorandum of appeal and since the issue of alibi was not before the judge on appeal, no point of law was involved warranting consideration of this Court on a third appeal.

Case Infomation

Appeal dismissed. G

No case referred to.

Kifunda for the respondent.

[zJDz]Judgment

H Lubuva, JA delivered the following considered judgment of the Court.

Before the Primary Court of Mwitikira within Dodoma Rural District the appellant was charged with and convicted of the offence of robbery contrary to ss 285 and 265 of the Penal Code. He was sentenced to a term of imprisonment for fifteen (15) years. On I

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LUBUVA JA

appeal to the District Court, the appeal was dismissed but the sentence was A enhanced to thirty years imprisonment. Again, he unsuccessfully appealed to the High Court at Dodoma. Dismissing the appeal, the learned judge held that there was ample evidence in support of the charge against the appellant who was sufficiently identified. This is thus a third appeal. B

The appeal before this Court has been lodged with a certified point of law. That is, whether failure by the learned judge on second appeal to consider the defense of alibi raised by the appellant was fatal. The appellant appeared in person at the hearing of this appeal. He has filed six grounds of appeal which in sum total C challenge the learned judge's failure to consider the appellant's defence of alibi. This, we think, is the only legal point for consideration in this appeal. In ground two of the memorandum of appeal, the appellant inter alia complains:

'That the Honourable Appellate Judge misdirected himself in law and fact in failing to evaluate D any defence testimony and that of any witnesses as regants (sic) my where-abouts on the material day.'

On record, the evidence which was accepted and believed as truthful by all the E courts below was that of PW1, PW2 and PW3. According to the evidence, on 4 May 1991 at about 5 pm while PW1 and PW2 were on their way home from Dodoma, on arrival at Mpunguzi village they were joined by Kasiani Ndunguru (PW 3) a teacher at the locality. As PW1, PW2 and PW3 proceeded to their home F village Mtita, the appellant in the company of other bandits who were not traced, waylaid them (PW1, PW2, PW3). In the process, Grace Malolela (PW1) was robbed Shs 6,000/=, a piece of khanga and a watch. The appellant and the other bandits were armed with a gun, clubs and a bush knife. In the course of the G robbery, PW1 and PW2 were also manhandled. In his defence at the trial, the appellant denied his involvement in the commission of the offence in that he was not at the scene of crime when the offence took place. The trial magistrate H rejected the appellant's defence of alibi and found it as a fact that the appellant was sufficiently identified in his participation in the robbery. He was therefore found guilty as charged.

On appeal to the District Court Dodoma, the learned District Magistrate dismissed the appeal on the ground that the identity of the appellant was clearly established from the evidence of PW1 which was corroborated by PW2 and PW3. Secondly, the learned I

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LUBUVA JA

A District Magistrate held that the appellant was found in possession of PW1's piece of khanga and PW2's local rate receipt which had been stolen in the course of the robbery and that the appellant also produced Shs 2,220/= as the balance of the money robbed. As already indicated, on second appeal to the High Court, the appeal was dismissed because the learned judge held that it was amply proved that the appellant was involved in the robbery in which PW1 and PW2 were the victims. B

At the hearing of this appeal before us, the appellant who appeared in person, opted not to add anything more to the memorandum of appeal filed. For the respondent Republic Mr Kifunda, learned State Attorney addressed us briefly. He C submitted that this being a third appeal and there being no point of law involved, the appeal should be dismissed. He further submitted that there was no merit in the point of law certified because the issues of the defense of alibi was not raised D before the High Court. Mr Kifunda, learned State Attorney finally submitted that the fact that the defence of alibi was not considered by the learned judge on the second appeal was not fatal. There was sufficient evidence on which to sustain the conviction, Mr Kifunda concluded.

E Now we will examine the merits of the points of law certified to this Court. As seen from the ground of appeal extracted, the gravamen of the complaint against the learned judge is that the defence of alibi raised by the appellant was not considered on appeal before the High Court. Upon our scrutiny of the judgment we F agree that the issue of alibi was not, with respect, expressly dealt with by the learned judge. But then we ask ourselves whether the learned judge can be faulted on that. In our considered view, the answer to that is categorically in the negative. This is for the simple and obvious reason that appeals in any court are a creation of procedure. It is common knowledge that the Civil Procedure Code 1966 and the G Criminal

Procedure Act, 1985 provide a procedure to be followed in the processing of civil and criminal appeals respectively. Under such laid down procedure it is provided as to what issues are to be raised and dealt with on appeal. In this case, the issue of alibi was not one of the issues brought before the H learned judge to deal with on appeal. Furthermore, even in the seven point memorandum of appeal filed before the High Court, the question of alibi was not raised. In that situation we are, with respect, in agreement with Mr Kifunda, learned State Attorney that the defence of alibi not being part of the memorandum of appeal filed, there was no basis upon which the learned judge on second appeal could deal with this issue. I

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LUBUVA JA

At this juncture it is pertinent for us to make it clear that a judge on appeal is not A there to fish around for any point that may be raised, suggested or thought of at any time in the course of hearing on appeal. He is guided by procedure to deliberate on issues or points raised at the appropriate time through the memorandum of appeal. This was not the case here, the issue was not before the learned judge on appeal. In these circumstances we are, with respect, satisfied that no point of the law was involved. B

On the other hand, even granted that a point of law was involved upon a close scrutiny of the judgment of the High Court on appeal, it seems to us clear that the learned judge dealt with the issue of alibi indirectly. In our view, the learned judge addressed himself on this issue when dealing with the evidence of PW1 (Grace C Malolela). He stated:

'The evidence on record clearly shows that PW1, Grace Malolela identified the appellant, whom she knew by name as Kamando, as one of those people who invaded them as they were on their way home from Dodoma.' (emphasis supplied). D

Again it is on record that the learned judge alludes to the identity of the appellant when he dealt with the evidence of PW3 (Kasiani Ngunguru). There, he stated: E

'The old man rushed back on hearing the alarm raised by the girls. He recognised the appellant as they were dashing away from the girls after robbing them.'(emphasis supplied).

This, to our minds, clearly shows that the learned judge addressed himself on the F crucial issue of the identification of the appellant. That is, that from the evidence, the appellant was properly identified as a participant to the crime. From this it is apparent to us that the learned judge addressed on the fact that the appellant as G identified could not be elsewhere at the time when the crime was committed at the same time when he was seen at the scene of crime. This, to us, was clearly nothing but a concerted effort on the part of the learned judge to deal with the identity of the appellant which aspect indirectly as pointed out covers the issue of alibi. H

In the result, we are satisfied that in the circumstances of the case there was no point of law involved warranting consideration of this Court on a third appeal. We are also satisfied that the offence having taken place during day time, the identity of the appellant was proved satisfactorily. There was ample evidence upon which to sustain the conviction. We dismiss the appeal in its entirety. I

1995 TLR p144

A

[zRPz]PAULO MATHEO v REPUBLIC 1995 TLR 144 (CA)

Court Court of Appeal - Dodoma
Judge Kisanga AG, Ramadhani CJ and Mfalila JJA

Criminal Appeal No 59 of 1994 B
May 8 1995
(From the decision of the High Court of Tanzania at Dodoma, Maina, J) C
Flynote
Criminal Practice and Procedure - Economic and Organized Crime Control Act 1984 - Requirement for the Director of Public Prosecution's consent to prosecute - Consent given after trial had commenced - Whether consent as required by the law - Section 26(1) of the Economic and Organized Crime Control Act 1984. D
-Headnote
The trial of the appellant started as an ordinary trial but upon reaching half-way the character of the offences changed to economic crimes. In compliance with s 26(1) of the Economic and Organized Crime Control Act 1984, the DPP gave his E consent to prosecute, the trial continued and the appellant was convicted. The first appellate court validated the proceedings of the trial court. The appellant further appealed to the Court of Appeal.
Held:
F (i) The consent of the DPP must be given before any trial involving an economic offence can commence; the DPP cannot consent retrospectively;
(ii) In this case the consent of the DPP was not given in accordance with the law.
Case Infomation
Order accordingly G
No case referred to.
[zJDz]Judgment
Mfalila JA delivered the following considered judgment of the court: H
The appellant Paulo Matheo was the first accused at the trial in the District Court at Dodoma where with six other persons he was charged with two counts involving robbery and unlawful possession of a firearm. Five accused were acquitted in both counts, the appellant and the fourth accused were also acquitted on the first count but were convicted on the second count i.e. unlawful posses- I
1995 TLR p145
MFALILA JA
sion of a firearm, and were sentenced to fifteen years imprisonment. On appeal to A the High Court at Dodoma, the appeal of the fourth accused was allowed and he was set free, the present appellant's appeal was only partially successful in that the sentence was reduced to seven years imprisonment, his conviction was confirmed. This is his further appeal. B

However in view of what transpired at the trial, it is not necessary for us to go into the merits of the case. The trial in this case started as an ordinary trial in March 1990, but mid-way through the trial in October 1991 after nine prosecution witnesses had given evidence, the character of the offences was changed to economic crimes and the Director of Public Prosecutions filed both the transfer of C the offences and his consent as required by s 26(1) of the Economic and Organised Crime Control Act, 1984. However both the consent and the transfer which are in the record of trial appear to refer to a different case involving different accused persons although the offence is the same. This means that the trial of the D appellant and his colleagues in the District Court started without the consent of the Director of Public Prosecutions in clear violation of s 26(1) which provides as follows:

'26 (1) Subject to the provisions of this section, no trial in respect of an economic offence may E be commenced under this Act save with the consent of the Director of Public Prosecutions.'

So that even if the consent filed in record was in respect of this case, it would still F be invalid because such consent must be given before any trial involving an economic offence can commence. The trial cannot start and obtain the consent posthumously as it were, in other words the Director of Public Prosecutions cannot consent retrospectively. In the circumstances the learned judge on first appeal was wrong to validate the proceedings in the trial court in the following words: G

'The required consent by the Director of Public Prosecutions was given as required by law and the transfer of the offence which is an economic offence was also made.' H

However as indicated there was no consent relevant to this case given in accordance with the law.

Accordingly we declare the entire proceedings in the trial court null and void and quash them. The fate of the appellant in these circumstances has exercised our I

1995 TLR p146

MFALILA JA

A minds. He was sentenced to seven years imprisonment which with remission for good conduct amounts to a substantive term of four years and some eight months. He has been in custody since May 1989 this makes it five years to-date. It was in these circumstances that we did not feel inclined to order a retrial of the appellant. But taking into account the nature of the offence involved, we decided to B leave the fate of the appellant into the hands of the Director of Public Prosecutions who will decide whether to mount a fresh prosecution against the appellant in accordance with the law. In the meantime, we order the immediate release of the appellant from prison unless he is lawfully held in connection with some other matter. C

1995 TLR p146

E

[zRPz]GEORGE A MMARI AND ANANDE A MMARI 1995 TLR 146 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Mwaikasu J

(PC) Civil Appeal No 116 of 1994 F
May 14, 1995
Flynote
Probate and Administration - Wills - Attestation of wills - Will drawn by a literate person - When valid - Local Customary Law (Declaration) (No 4) Order 1963, GN 436 of 1963 Rules 5 and 19. G
-Headnote
The appellants challenged the validity of a will drawn by their deceased father while hospitalized bequeathing a house to their stepmother. The will was attested by the said stepmother, i.e. wife of testator, and the doctor who was attending the deceased. H
Held:

(i) For a will drawn up by a literate person to be valid it must be attested, besides the wife (wives), by at least two persons of whom one must be a relative of the deceased;

(ii) The deceased's will was not attested by a relative of the deceased, and it was defective for want of proper attestation. I

1995 TLR p147
MWAIKASU J
Case Infomation
Appeal allowed. A
No case referred to.
[zJDz]Judgment
Mwaikusa, J:
This is a second appeal arising from the decision of Kinondoni District Court in respect of an appeal from Manzese Primary Court concerning Probate and B Administration Cause No 57 of 1993. This appeal is principally centered on a dispute over the legality of the deceased's written will that purported to bequeath the deceased's house situate at Sinza within the City of Dar es Salaam to the respondent, one Afra Fuime. The two appellants namely George Anael Mmari and C Anande Anael Mmari, are the children of the deceased, one Anael Kikoka Mmari.
According to the evidence that was adduced before the trial court, the two appellants are the only children surviving the deceased, born of him with two different mothers who were not cohabiting with the deceased at the time of his D death. He died on 30 April 1993. The deceased was then cohabiting with the respondent who had then lived with him for about fifteen years. During his life time the deceased had managed to acquire various properties including the house in dispute. E
It was while the deceased was sick and admitted at Hindu Mandal Hospital within the City of Dar es Salaam that on 25 January 1995 he is said to have drawn up his will by which he purported to bequeath his various properties to his two children and the house in dispute to the respondent. Such will was attested by the F respondent who is the deceased's wife and one Dr Gloria, only. It is this doctor Gloria who was then attending the deceased while hospitalized at

Hindu Mandal hospital. As it will have been noted, besides the respondent, the deceased's wife, the will was actually attested by one witness only, the doctor, one Gloria. Yet in G law, according to Rules (5) and (19) of the Local Customary Law (Declaration) (No 4) Order 1963, GN 436/63, Third Schedule, a will drawn up by a literate person, for it to be valid it must be attested besides the wife (wives), by at least two persons of whom one must be a relative of the deceased. That was clearly not complied H with in the will the subject of this appeal. Apparently the validity of such will was challenged by the two appellants before the trial court, but the trial court honoured such will. The will was challenged for want of a clan member to witness it and that the same had been written under undue influence of the respondent while the deceased was seriously sick. I

A Nevertheless, the lower appellate court, (H Kalombola, Esq SRM), surprisingly found that because the Administrator had not disputed such will, then there was nothing wrong with it, and therefore upheld the decision of the Primary Court to give effect to such will. That once more aggrieved the appellants, hence their appeal to this court. B

As pointed out earlier the deceased's will is clearly defective, for want of proper attestation. It lacked one more witness who ought to have been a relative of the deceased. As such it cannot be effected. It is null and void. In the circumstances, the deceased is to be taken to have died intestate and therefore administration of his estate is to be done in accordance with the applicable law, as if he had died intestate. C

Accordingly when this appeal came up for hearing on 2 February 1995, I allowed the appeal, set aside the order of the lower court, declaring the will null and void, with an order that the estate of the deceased should be administered afresh as if D he had died intestate, and that the case should be remitted back to the lower trial court to make necessary orders for the administration of the deceased's estate, reserving my reasons which I hereby give. E

G

[zRPz]DAUDI SABAYA v REPUBLIC 1995 TLR 148 (CA)

Court Court of Appeal - Dar Es Salaam
Judge Kisanga JJA, Omar JJA and Lubuva JJA

H Criminal Appeal No 67 of 1994
May 23, 1995
(From the decision of the High Court of Tanzania at Dar es Salaam, Mackanja, J)
Flynote
Criminal Law - Murder - Malice aforethought - Self defence - Use of excessive force in self defence - Section 18B(3) of the Penal Code. I

LUBUVA JA

-Headnote

The appellant was charged with and convicted of murder by the High Court. The A trial court found that the appellant killed with malice aforethought ought because he used excessive force and rejected his defence of self-defence. The appellant inflicted several serious cut wounds on the deceased whom he found stealing from the shamba he was guarding and who, after some persuit stopped and started advancing towards the appellant holding a knife in hand. On appeal: B

Held:

(i) Having regard to all the circumstances of the case as a whole the defence of self defence was properly founded;

(ii) The appellant used greater degree of force than was necessary in the circumstances; he should have been found guilty of manslaughter;

Conviction of murder set aside, that of manslaughter substituted. C

Case Infomation

Cases referred to:

(1) Ipabala s/o Ibrahim v. R [1953] 20 EACA 300

(2) Sigismund Palmer v. R [1971] AC 814 D

Miss Mjasiri for the appellant.

Miss Chinguwile for the respondent.

[zJDz]Judgment

Lubuva, JA delivered the following considered judgment of the Court: E

The High Court of Tanzania sitting in Dar es Salaam (Mackanja, J) convicted the appellant of the offence of murder contrary to s 196 of the Penal Code. He was sentenced to death. From the conviction and sentence, he has appealed to this court. F

As established from the evidence on record, the facts of the case are simple. They may be summarised as follows: The appellant and the deceased lived at Goba, Kinondoni District within the outskirts of Dar es Salaam. The appellant was engaged to guard the farm of one Michael Mushi in which pineapples were grown. On 27 November 1988 at about 8 pm before retiring to bed, the appellant went G around the farm to inspect and ensure that the security position was in order. In the course of his rounds in the farm, the appellant saw the shadow of a moving object. On approaching the object, it dawned on the appellant that it was a man H who was then running away. The appellant pursued the fleeing person shouting 'thief! thief'. The fleeing thief who is the deceased in this case stopped and then advanced towards the appellant holding a knife in his hand. The appellant hit the deceased with a stick which was wrested from him (appellant) by the deceased. As the deceased still persisted in advancing towards the appellant, fearing for his life, the I

A appellant slashed the deceased with a panga. The deceased sustained serious multiple deep injuries over the shoulders and the back. While on the way to the hospital the deceased died.

The appellant was arrested and charged with the offence of murder.

B At the trial it was not in dispute that the appellant caused the death of the deceased. The issue was whether the appellant caused the death of the deceased with malice aforethought. It was the appellant's defence that he killed the deceased who was found at the farm stealing. The learned Trial Judge held that the appellant used excessive force in inflicting several serious cut wounds on the deceased. The appellant was thus convicted of murder. C

In this appeal, Miss Mjasiri, learned counsel from the Tanzania Legal Corporation advocated for the appellant and Miss Chinguwile, learned State Attorney appeared for the respondent, Republic. The memorandum of appeal filed contains three D grounds of appeal which in effect boil down to one point of complaint. That is, that the learned Trial Judge erred in rejecting the appellant's defence of self defence. Arguing on this point Miss Mjasiri, with distinct eloquence, addressed us at length on the fact that in the circumstances of the case the prosecution had failed to prove malice aforethought against the appellant. That the appellant should have E been convicted of the lesser offence of manslaughter and not murder because the appellant caused the death of the deceased in the course of defending himself (appellant) against the threatening deceased, Miss Mjasiri contended. F

In support of her submission, Miss Mjasiri referred us to the case of Ipalala s/o Ibrahim v R (1) on the basis of which she said, the learned Trial Judge had resolved to decide the instant case. Unfortunately, she lamented, the learned Trial Judge came to the conclusion which in her view was not in accord with the principles set out in that case. Miss Mjasiri, also made further reference to the G Privy Council decision in the Australian case of Sigismund Palmer v R (2) which was also considered by the learned Trial Judge. In her submission, she stressed that even though the correct principles on self defence as restated in this case were taken into account in this case, the learned Trial Judge failed to distinguish the circumstances of this case from those in the Palmer case. As a result, in the circumstances of the case, she said, the Trial Judge fell into the error of convicting H the appellant of the offence of murder and not manslaughter.

Miss Chinguwile, learned State Attorney, who as already indicated appeared for the Republic, conceded to the submission that I

the appellant should have been convicted of manslaughter and not murder. In view A of the fact that in the evidence on record, the deceased was found stealing from the shamba which the appellant was guarding, the Trial Judge was wrong in rejecting the defence of self defence, Miss Chinguwile contended. She further argued that in view of the provisions s 18A (3) of the Penal Code, the appellant having used more force than was reasonably necessary, the appellant should have been convicted of manslaughter. B

From the record of this case before the High Court and the oral submissions before us at the hearing of this appeal, it is apparent that the essential facts are not disputed. The main question in this appeal is whether the defence of self defence C could in the circumstances of this case be sustained. On this, Miss Chinguwile, the learned State Attorney while in agreement with Miss

Msajiri learned Counsel for the appellant that the appellant used excessive force, categorically asserted that the Trial Judge should have found the appellant guilty of manslaughter because, D she said, the defence of self defence could not be discounted. In order to resolve this issue it is imperative first to have a clear perception of the law as it stands in Tanzania today. This, it appears to us the learned Trial Judge sufficiently E addressed himself on in the judgment in which reference was made to ss 18, 18A and 18B of the Penal Code. These are the provisions which, it should be noted, provide for circumstances in which the right to defend one's self or one's property or others against any unlawful act of seizure, destruction or violence. However, the right of defence provided for under s 18A of the Penal Code is subject to the limitations set out under s 18B which provides: F

18B: (1) In exercising the right of self defence of property, a person shall be entitled only to use such reasonable force as may be necessary for that defence. G

(2) Every person shall be criminally liable for any offence resulting from excessive force used in self defence or in defence of another or in defence of property.

(3) Any person who causes the death of another as the result of excessive force used in defence, shall be guilty of manslaughter. H

Apart from these clear statutory provisions on the defence of self defence in Tanzania, and as correctly pointed out by the learned Trial Judge, case law is another important source of guidance in deciding cases of this nature in Tanzania. In the instant case, the main evidence from which the sequence of events leading to the I

A death of the deceased is reflected in the extra judicial statement of the appellant. This was a statement made by the appellant before a magistrate as a justice of the peace on 3 December 1988, six days after the incident (27 November 1988). This was, to our minds recent enough for the appellant's memory to recount vividly what happened before the death of the deceased. In the statement, the appellant among others said: B

'... Mara niliona kama mtu amekaa. Nikaanza kumsogelea na kabla sijamfikia hatua 3 hivi akaanza kukimbia mimi huku namfukuza na kupiga kelele za mwizi, mwizi.... C

Mara katika kufukuzana huke nilimkuta nikampiqasfimbe mbili ubavuni mara marehemu alininyang'anya fimbe na akatoakisu na kukiweka mkononi ili amijeruhi juu ya mali yangu Kwa bahati mkono wa kushoto nilikuwa na panga hivye kabla hajaanza kunikata nilimuwahi na kuanza kumkata kwa kuwa kulikuwa giza sikujua nimenkata sehemu gani kwani marehemu alikuwa anatake kunirudishia' (emphasis supplied). D

As already pointed out, the learned Trial Judge accepted the evidence of the appellant as the only witness who could tell how the cut wounds on the back of the deceased were inflicted. On this evidence and as the extra judicial statement E extract above shows, it is evident that the appellant while in pursuit of the fleeing deceased from the shamba as a suspected thief, inflicted two blows on the deceased by use of a stick. Thereafter, in the process of the pursuit, according to F the appellant's statement, the deceased having wrested the stick from the appellant held out a knife while advancing to attack the appellant. In these circumstances which were believed

by the learned Trial Judge as truthful, could the appellant avail himself of the right of self defence? The learned Trial Judge rejected the defence of self defence when he said: G

'It could be said that the accused was also entitled to arrest the deceased and that he was also entitled to use all reasonable force to subdue the deceased. But it is now clear that the deceased did not resist the arrest through any violence. In my view the two blows which the H accused inflicted on the deceased were unlawful and the deceased was entitled to defend himself. In the circumstances of this case the first two blows were a series of unlawful attacks on the deceased which were committed out of no legal justification.'

From this it is apparent to us that the learned Trial Judge while accepting and relying on the extra judicial statement of the appel- I

lant, the analysis and conclusion reached are based on parts of the statement and A not the statement taken as a whole. This, Miss Mjasiri, learned Counsel for the appellant submitted was not proper on the part of the learned Trial Judge because it resulted in the rejection of the defence of self defence raised. Referring to the case of Ipalala s/o Ibrahim v R (1) the learned Trial Judge resolved to decide this B case on the basis of the principles set out in that case. Applying the principle in the Ipalala case to the circumstances of this case, the Trial Judge held that as was the case in the Ipalala case the right of self defence was not established because no unlawful act had been established which from the beginning had posed imminent danger to the appellant. C

It should be noted that the circumstances and facts in the Ipalala case are different from those in the instant case. In the Ipalala case, the appellant killed the deceased who at the time was struggling with the appellant's companion. The appellant hit the deceased from behind with a stick which he (appellant) had D fetched. The blows caused grievous injury and death to the deceased. In defence, it was submitted that the appellant had acted in defence of his companion's person in that the appellant had reasonably feared that the deceased was attempting to kill his companion. Dismissing the appeal, the Court of Appeal for E Eastern Africa re-affirmed the principle that killing of another is justifiable where an accused person acts without vindictive feeling and believes, and has reasonable grounds that a person's life is in imminent peril and that his action is absolutely necessary for the preservation of life. F

The Court further held that there was no basis upon which it could be inferred that the appellant honestly and reasonably believed that his friend's life was in imminent peril and that his action in hitting the deceased on the head was absolutely necessary for the preservation of life. In the instant case, however, with G respect, we agree with Miss Mjasiri, learned Counsel that the circumstances are distinguishable. Here, as the evidence in the extra-judicial statement shows, unlike in the Ipalala case, the life of the appellant himself was threatened and not his companion's. Furthermore, taking into account the sequence of events as H revealed from the extra-judicial statement as a whole and not in portions as the learned Trial Judge did, it seems reasonable to us that the life of the appellant was in imminent peril when the deceased advanced towards him (appellant) threatening to attack (him) with a knife in hand. In that situation, we

think it was reasonable for the appellant to take such action as was necessary for the preservation of his life against the I
1995 TLR p154
LUBUVA JA
A deceased's threatened act of violence to his (appellant) body. From this point of view, it seems to us that the first two blows inflicted on the deceased by the appellant were rather more of an action on the part of the appellant taken as a reasonable means to prevent the commission of theft by the deceased at the shamba and not as a series of unlawful acts on the part of the deceased as the Trial Judge held. In our considered opinion, such are the circumstances in which B the defence of self defence could properly be called in.
Having taken the view that the circumstances and the evidence of the case as a whole warranted the invocation of self defence which is enough to dispose of this appeal, we do not think it necessary to address ourselves any further on the case C of Sigismund Palmer v R (2). Our attention was drawn to this case by the learned Counsel for the appellant. The learned Trial Judge relied on the decision of that case for the proposition of the law that if resistance exceeds the bounds of D mere defence and prevention, the defender would himself become an aggressor. With respect, we think this is an overstatement of the law on self defence because in deciding whether it was reasonably necessary to have used as much force as was used, regarding must be had to all the circumstances of the case. That is, E each case in which excessive force is used, must be taken on its own individual merit and not on a generalised basis. That is the general principle which was underscored in the Palmer case in which the defence of self defence was extensively discussed.
F Though as already indicated, there was evidence in support of self defence, it is no gainsay that the force used was excessive. The post mortem examination report bears this out. It shows that the deceased sustained multiple deep cut wounds over the shoulder and on the back with amputed index and middle fingers.
G In Tanzania, the law is clearly spelled out under the Penal Code for a person who causes the death of another as a result of excessive force used in defence. For an offence committed under these circumstances, s 18B(3) of the Penal Code provides for a conviction of manslaughter. In the instant case, we agree with Miss Mjasiri, learned Counsel for the appellant supported by the learned State Attorney H that having regard to all the circumstances of the case as a whole, the defence of self defence was properly founded. We also agree with both learned Counsel that as the appellant used greater degree of force that was necessary in the circumstances, he should have been found guilty of manslaughter and not murder. Had the learned Trial Judge considered the sequence of events leading to the I
1995 TLR p155
LUBUVA JA
death of the deceased as a whole and not in phases, no doubt he would well have A come to the same conclusion.
For these reasons, we set aside the conviction for murder and sentence of death. In substitution thereof, we enter a conviction for manslaughter. Taking into account that relevant factors and

circumstances of the case we sentence the appellant to five (5) years imprisonment effective from the date of his conviction before the High Court. B

1995 TLR p155

D

[zRPz]FANUEL MANTIRI NG'UNDA v HERMAN MANTIRI NG'UNDA AND TWO OTHERS

1995 TLR 155 (CA)

Court Court of Appeal - Arusha

Judge Kisanga JJA, Ramadhani JJA and Lubuva JJA

Civil Appeal No 8 of 1995 E

May 24, 1995

(From the decision of the High Court of Tanzania at Moshi, Mushi, J) F

Flynote

Magistrates' Courts - Jurisdiction - Jurisdiction over land held under customary law - Magistrates' Courts Act 1984.

Civil Practice and Procedure - Pleadings - Order of the High Court granting leave for case to proceed before the Resident Magistrate not pleaded - consequences thereof. G

-Headnote

The High Court had given leave for a dispute involving land held under customary law to be heard by the Court of Resident Magistrate. However, the order of the High Court granting leave was not pleaded in the plaint and the trial court came to know about the order when it was produced as an exhibit during trial. It was H evident that the order was granted before proceedings commenced. The trial court heard and determined the suit. On appeal the High Court ruled that the Magistrates' Court had no jurisidiction to entertain the dispute because the order granting leave to the court to hear and determine the dispute was not pleaded in the plaint. On further appeal to the Court of Appeal of Tanzania: I

1995 TLR p156

LUBUVA JA

A Held:

(i) Although the proceedings were commenced without the order of leave of the High Court being produced and pleaded in the plaint that the trial court had jurisdiction, the matter was saved when in the course of evidence the order of the High Court was availed to the trial court;

B (ii) As the order was in existence at the time the proceedings were commenced, as a matter of equity and justice, the proceedings before the Magistrates' Court were not vitiated and the Court was properly vested with jurisdiction over the case.

Case Infomation

Appeal allowed.

C No case referred to.

Jonathan, for the appellant
[zJDz]Judgment
Lubuva, JA, delivered the following considered judgment of the court: D
This is a second appeal. It arises from the decision of the High Court of Tanzania (Mushi, J) setting aside the judgment and decree of the Magistrates' Court in RM civil case no 1 of 1992.
E Briefly, the facts that gave rise to the case were as follows. The suit involved a dispute between the Ng'unda clan members over a piece of land in Losaa Village, Hai District, Kilimanjaro Region. In the Magistrates' Court Moshi, the appellant successfully sued the respondents for trespass. He was declared the lawful owner of the land in dispute and the respondents were further ordered to pay compensation of Shs 300,000/= for loss of use and damages to the appellant. F
An order of injunction was also issued to restrain the respondents from entering the disputed land. From that decision of the Resident Magistrate, the respondents appealed to the High Court. Dealing with the appeal, the learned judge without G going into the merits of the appeal disposed of the matter on the ground that the Magistrates' Court had no jurisdiction to adjudicate on this case. In allowing the appeal, the learned judge held that although the Magistrates' Court Moshi had been granted leave of the High Court to entertain the suit, the Court's jurisdiction was H not properly invoked because it was not pleaded in the plaint. The learned judge thus ordered the plaint to be struck out as it was bad in law. Dissatisfied with the decision of the High Court, the appellant has appealed to this Court.
Mr Jonathan learned Counsel who had represented the appellant before the Courts below also appeared for the appellant before us. I
1995 TLR p157
LUBUVA JA
Although he had filed seven grounds of appeal, he preferred to argue only grounds A one and two together in which in his view, the points raised in the rest of the grounds were sufficiently canvassed. In these two grounds the appellant complained that:
1. The learned Judge erred in allowing the appeal on a point not raised in the B memorandum of appeal and not otherwise urged at its hearing.
2. The learned Judge erred in condemning the appellant unheard on the particular point determining the appeal. C
Arguing on these grounds, Mr Jonathan, learned Counsel assailed the learned judge in allowing the appeal on a point which had not been raised on appeal on which the appellant had not been given a chance to be heard. He further submitted that it was erroneous on the part of the learned judge to allow the appeal on the ground that the Court (Magistrates' Court Moshi) had no jurisdiction over the case D because leave of the High Court had been granted and the order was tendered in Court as exhibit P1 in the course of the proceedings in court. Mr Jonathan however, conceded that it was not proper for the court to proceed with the hearing of the case on the assumption that the Court had jurisdiction to deal with the case. E Mr Jonathan however, firmly maintained that in this case, though initially the proceedings were commenced when the order granting leave of the High Court due to oversight had not been availed to the

Court, the situation was saved when the order was produced in court as a matter of evidence. He finally submitted that F as the court order granting leave was issued on 29 November 1991, at the time of the commencement of the proceedings (9 January 1992) the court was properly vested with jurisdiction to adjudicate upon the case. He prayed the Court to allow the appeal and order the case to be remitted to the High Court to be heard on merit. G

On behalf of the other respondents, Ibrahim Athumani Ng'unda, the second respondent briefly addressed the Court. He stated that the respondents were not aware that leave of the High Court had been granted vesting jurisdiction in the Magistrates' Court Moshi to hear this case. However, at the Court's prompting that H the High Court order granting leave was tendered in Court as exhibit P1, he (Ibrahim Athumani Ng'unda)did not pursue this point any further. As for the arguments raised in support of the appeal, Ibraham Athumani Ng'unda, was of the view that since the issues involved were of a legal nature, they (respondents) had I

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LUBUVA JA

A left the matter the Court to decide according to the law and merit of the case.

The determination of this appeal turns around the issue whether the Magistrates; Court Moshi had jurisdiction to hear the case. This is an issue which is governed by the provisions of s 63(1) of the Magistrate's Courts Act, 1984 which provides: B

'63 (1) Subject to the provisions of any law for the time being in force where jurisdiction in respect of the same proceedings is conferred on different courts, each court shall have a concurrent jurisdiction therein: C

Provided no civil proceedings in respect of marriage, guardianship or inheritance under customary law, or the incidents thereof, and no civil proceedings in respect of immovable property, other than proceedings relating to land held on a Government lease or a right of occupancy granted under the Land Ordinance or proceedings under Section 22 or 23 of the Land Ordinance shall be commenced in any Court other than a primary court unless the D Republic is a party thereto or unless the High Court gives leave for such proceedings to be commenced in some other Court; (emphasis supplied)

E From the wording of this provision, it is unambiguously clear that suits involving land held under customary law are to be instituted before the primary court unless leave of the High Court is obtained for other courts to entertain such cases of this nature. In this case, the fact is that the Magistrates' Court Moshi had by order of F the High Court been granted leave to have the proceedings of the case commenced in that Court. However, in the plaint, it was not indicated that leave had been granted or that the Court had jurisdiction to deal with the case. As a result, the learned judge on appeal held that such omission in the pleadings was fatal. Furthermore, from the record, it is apparent that the order of the High Court G granting leave was produced in court as exhibit (P1) in the course of evidence by the appellant (original plaintiff). That to us clearly shows that the proceedings before the Magistrates' Court Moshi were commenced before the order of the High Court was availed to the court. For that reason, the learned judge held that the Court had assumed jurisdiction which it did not have. The plaint was thus ordered H to be struck out. In this connection, with respect, we do not accept Mr Jonathan's complaint that the

learned judge decided the appeal on the question of jurisdiction which was not raised or on which the appellant was not heard. This we think is baseless because the record clearly shows that the matter was raised I
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LUBUVA JA
in the written statement of defence at the trial and the learned Counsel is also on A record addressing himself on this point on appeal before the learned judge. We reject that ground.
The question of jurisdiction for any court is basic, it goes to the very root of the authority of the court to adjudicate upon cases of different nature. In our considered view, the question of jurisdiction is so fundamental that the courts B must as a matter of practice on the face of it be certain and assured of their jurisdictional position at the commencement of the trial. This should be done from the pleadings. The reason for this is that it is risky and unsafe for the court to proceed with the trial of a case on the assumption that the court has jurisdiction to C adjudicate upon the case. For the court to proceed to try a case on the basis of assuming jurisdiction has the obvious disadvantage that the trial may well end up in futility as null and void on grounds of lack of jurisdiction when it is proved later as matter of evidence that the court was not properly vested with jurisdiction. D
Addressing himself on this point, with respect, we are in agreement with the learned judge's reasoning behind the logic of requiring leave of the High Court when he said: E

'The purpose of obtaining leave is to show that the RM's Court or District Court has been given special jurisdiction to determine cases of land held under customary law. This leave is the key to the opening or instituting the suit in the RM's or District Court. Jurisdiction of the Court must be evident on the fact of the plaint and not a matter of evidence to be gathered at the trial. In fact F not only that the plaint should state that such leave had been granted, but the High Court order granting such leave should form part of the plaint as an annexure....'

This, we are satisfied, was a correct restatement of the principle involved in the G Court's ascertainment of its jurisdiction at the commencement of cases. In the circumstances of this case, where as already indicated, the jurisdiction of the court was not included in the plaint and the Court's order granting leave to the Magistrates' Court Moshi was availed at a later stage of the trial, was the court's H jurisdiction ousted? Mr Jonathan, learned Counsel for the appellant has contended that as the High Court order granting leave was already issued since 29 November 1991 and the court proceedings before the Magistrates' Court were commenced on 9 January 1992, the court was vested with juridiction to try the case.
Indeed it is a gainsay that the court order exhibit P1 granting I
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LUBUVA JA
A leave was issued by the High Court on 29 November 1991. For some reason however the order was not availed to the Magistrates' Court Moshi by 9 January 1992 when the proceedings were commenced. It was on 5 June 1992 when, in the course of the proceedings that the order was tendered in court as exhibit P1. In these circumstances, we think the situation is different. That is, at the B commencement of the proceedings, the order granting leave was already in

existence in which case the court of the Resident Magistrate Moshi was vested with jurisdiction over the case. To our minds, the situation would be different if C there was no order at all in existence at the time of the commencement of the proceedings as there would be no legal basis upon which the court could adjudicate upon the case. On the other hand if the order of the High Court was issued after the commencement of the proceedings, such order would not operate retrospectively so as to validate the proceedings which had commenced previously. Here, as already explained the order granting leave in terms of s 63(1) D of the Magistrates' Courts Act, 1984 was already in existence when the proceedings commenced but had not then been communicated to the court. It was communicated later in the course of evidence. In our view, the order granting leave having been tendered in court as exhibit in the course of the evidence, it formed part of the record. E

In the result, having regard to all the circumstances of the case, we are with respect, in agreement with Mr Jonathan, learned Counsel for the appellant that although the proceedings were commenced without the order of leave of the High Court being produced and the fact that it was not pleaded in the plaint that the F court had jurisdiction, the matter was saved when in the course of evidence, the order of the High Court of 29 November 1991 was availed to the court. As the order was in existence at the time when the proceedings were commenced we are of the settled view that as a matter of equity and justice, the proceedings G before the Magistrates' Court were not vitiated and that the court was properly vested with jurisdiction over the case.

In concluding this matter, we wish to re-emphasize one point. That is, that even H though we have found in the particular circumstances of this case that the non-availability of the order of the High Court granting leave at the commencement of the proceedings did not vitiate the trial by the Magistrates' Court, as a matter of practice, it is essential for the courts at all times in the first instance to ascertain from the pleadings stage if they are properly vested with jurisdiction and not to let the matter to chance. Furthermore, it is I

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also our view that in order to control and avoid unscrupulous litigants from taking A advantage of obtaining leave of the High Court after the commencement of the proceedings, the courts should be very strict and meticulous in scrutinizing the orders for such leave when produced in court at the appropriate time of pleadings. B

For these reasons, we allow the appeal and set aside the judgment and decree of the High Court. We also order that the matter be remitted to the High Court for hearing the appeal on its merit before another judge. It is accordingly ordered. Each party to bear its own costs of this appeal. C

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D

[zRPz]TRANSPORT EQUIPMENT LTD v DEVRAM P VALAMBHIA 1995 TLR 161 (CA)

Court Court of Appeal - Dar Es Salaam

Judge Kisanga JJA, Ramadhani JJA and Mfalila JJA

Civil application No 46 of 1994 E
May 24, 1995
(For the revision of the judgment, decree and order of the High Court of Tanzania at Dar es Salaam, Rubama, J) F
Flynote
Court of Appeal - Revisional jurisdiction - Revision by the Court of Appeal of Tanzania - When such revision is available - Section 4(3) of the Appellate Jurisdiction Act, 1979. G
-Headnote
In this application the applicant sought to move the Court of Appeal of Tanzania to revise the judgment, decree and order of the High Court. The application was brought under powers of revision given to the Court of Appeal by the Appellate Jurisdiction Act 1979 as amended by Act No 17 of 1993. The Court of Appeal considered, inter alia, when such powers of revision can be exercised. H
Held:
(i) The appellate jurisdiction and the revisional jurisdiction of the Court of Appeal of Tanzania are, in most cases, mutually exclusive; if there I
1995 TLR p162
RAMADHANI JA
A is a right of appeal then that right has to be pursued and, except for sufficient reason amounting to exceptional circumstances, there cannot be resort to the revisional jurisdiction of the Court of Appeal;
(ii) The fact that a person, through his own fault, has forfeited his right of appeal cannot amount to exceptional circumstances;
B (iii) If a party does not have an automatic right of appeal then he can use the revisional jurisdiction after he has sought leave to appeal but has been refused;
(v) The Court of Appeal, may suo motu, embark on revision whether or not the right of appeal exists, and whether or not it has been exercised in the first instance.
C (vi) In the present application the applicant had an automatic right of appeal which was not utilized due to the applicant's own fault.
Case Infomation
Application dismissed.
Cases referred to:
D (1) Jewels & Antiques(T) Ltd v. National Shipping Agencies Co Ltd [1994] TLR 107.
Mbuya Shayo, Rutabingwa and Mrs Oriyo for applicant.
M Maira and M Marando for respondent.
[zJDz]Judgment
E Ramadhani, JA delivered the ruling of the court:
This is an application by Transport Equipment Ltd moving this Court to revise the judgment, decree and order of Rubama, J in Civil Case No 210 of 1989 dated 12 February and 22 March

1991. The application is brought under the new powers of F revision given to this court by s 4(2) of the Appellate Jurisdiction Act, 1979 as amended by Act No 17 of 1993.

At the hearing of this application, the respondent, Devram P Valambhia, through his learned advocates, Mr Moses Maira and Mr Mabere Marando, came up with a G preliminary objection containing two points. First, the powers of revision granted to this Court by Act No 17 of 1993 came into force on 24 December 1993 (GN 908/93), so, he argued, the powers cannot operate retrospectively to affect rights which vested since 1991. He submitted that this application is incompetent and should be struck out. Secondly, the respondent argued that s 4(2) of the appellate H Jurisdiction Act, provides for revisional powers where there is an appeal pending before the Court.

It was pointed out to Mr Marando, who started arguing the objection, that the application has been brought under ss (3) and not ss (2) of s 4. Mr Marando conceded that error, admitted that I

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ss (3) is wider and does not require an appeal to be pending. After being allowed to A amend the motion by substituting ss (3) for ss (2), Mr Marando argued that the application is still misconceived as ss (3) can only be invoked where there is no right of appeal.

It is our considered opinion that the second point, that is, whether or not revision under ss (3) of s 4 is available where there is a right of appeal, is enough to B dispose of this preliminary objection. However, in order to make the ruling meaningful a brief court history of the parties is necessary. For clarity we shall use their names rather than legal labels as these have alternated a number of times. The present applicant shall simply be referred to as TEL while the respondent as Valambhia. C

On 22 August 1989 TEL filed a plaint against Valambhia seeking monies then with the Bank of Tanzania to be paid to TEL. On 29 August 1989 Mr Ole Mboko, learned advocate for TEL, told Nchalla, J that he was holding a brief for Mr Mkatte, learned counsel for Valambhia, and that the suit had been 'Settled amicably out of court'. D The learned judge gave an order to that effect.

Valambhia filed a chamber application to set aside the order of 29 August 1989 marking the suit settled out of court, alleging that fraud was used to obtain it. Mr E Mbuya, learned advocate who had taken over the case for TEL, was aware of the hearing date of the application but was absent on 10 December 1990 and so it was heard ex-parte. On 28 December 1990 Rubama, J set aside the order marking the suit as settled out of court.

Valambhia, on the same day, 28 December 1990, filed a written statement of F defence (WSD) and a counter-claim for 45% of the proceeds of the money due from the Government of the United Republic of Tanzania to TEL. A reply to the WSD and a WSD to the counter-claim were ordered to be filed by 25 January 1991 and the hearing was to be on 1 February 1991. G

On the latter date Mr Mbuya came with two applications: extending the time within which to file a reply and a WSD to the counter-claim to 8 March 1991, and adjournment of the hearing of the suit to the second week of March, 1991. The two applications were refused, the plaint was dismissed, the counter-claim was H granted and Valambhia was declared entitled to 45% of the

money as prayed. The learned judge also ordered Valambhia to prove quantum of general damages by affidavit to be filed on 5 March 1991. TEL again did not file a counter-affidavit on quantum and was absent on the date set for the proof thereof. General damages were granted ex-parte. I

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A TEL being aggrieved by the above decisions filed a notice of appeal in this Court on 19 February 1991. However, a copy of that was not served on Valambhia. TEL became aware of the non-service on 23 April 1991 when he received a copy of a notice of motion by Valambhia seeking to strike out that notice of appeal. Despite B that discovery, TEL did not file a notice of motion seeking to enlarge time within which to serve a copy of the notice of appeal on Valambhia until six months later, that is on 23 October 1991.

The matter went to Mfalila, JA for enlargement of time in which to serve a copy of the notice of appeal to Valambhia. That was refused and the reference from that C refusal was also dismissed by three judges of this court. TEL returned again with an application for a review of the ruling of that reference relying on the inherent jurisdiction of this court. There was a dispute as to whether or not we have inherent jurisdiction. That issue was referred to the full bench of this court which D ruled that there is inherent jurisdiction to review our decision in certain circumstances. So, the matter reverted to the three judges who, after hearing submissions, corrected certain errors but found 'no sufficient grounds for reviewing our previous ruling as asked.' That was on 12 September 1994.

E This application to revise the decision of Rubama J comes to us from that background, that is, after the right of appeal was lost through the fault of the applicant himself.

As already said Mr Marando's argument was that the door of revision is only open to a person who does not have a right of appeal and that the door is closed to the present applicant who had the right of appeal, tried to exercise it but was F unsuccessful because of his failure to fulfil certain prerequisite conditions.

Mr Marando said that the Appellate Jurisdiction Act is silent on the principle he has submitted but he contended that that is the principle governing revision in the lower courts. He cited s 79(1) of the Civil Procedure Code and also s 22 of the G Magistrates Courts Act, 1984 for the revisional powers of the district Court over the Primary Courts and s 43 and 44 of the same Act for the revisional powers of the High Court.

H The applicant was represented by a team of four advocates: Mr Everest Mbuya, Mr Shayo, Mrs Oriyo and Mr Rutabingwa. The first to respond was Mr Mbuya who said that s 44(1)(b) of the Magistrates Courts Act is saved by s 79(2) of the CPC. He then pointed out that s 44(1)(b) of the Magistrates Courts Act has wider powers of revision that s 79(1) of the CPC. Mr Mbuya argued that s 44(1)(b) of the Magistrates Courts Act, negates the principle pro- I

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pagated by Mr Marando. Mr Mbuya pointed out further that s 4(3) of the Appellate A Jurisdiction Act offers a party a choice of coming to this Court on appeal or for revision. He

submitted that where a party has a good reason he can still seek revision after he has failed to prosecute an appeal. However, he did not say what is a good reason. B

Mr Shayo also took his turn to address the Court. He said that the rights of revision and appeal under s 4(3) are concurrent and simultaneous and that there is no limitation. May we stop here and observe that we cannot pretend that we have understood what he meant by 'concurrent and simultaneous'. C

In reply, on behalf of the respondent, Mr Maira maintained that it is irregular for a party to choose both appeal and revision at the same time, even under s 44(1)(b) of the Magistrates Courts Act.

Section 79 of the CPC restricts revision to where there is no right of appeal. Subsection (1) of that section provides as follows: D

'The High Court may call for the record of any case which has been decided by an court subordinate to the High Court and in which no appeal lies thereto ... (emphasis is ours) E

However, that limitation is absent in ss 22, 43 and 44 of the Magistrates Courts Act, contrary to what Mr Marando submitted. In fact, as Mr Mbuya pointed out, s 44(1)(b) of the Magistrates Courts Act provides for very wide powers of revision that what is contained in s 79(1) of the CPC. That section provides: F

'(1) In addition to any other powers in that behalf conferred upon the High Court, the High Court -

(a) ...

(b) may, in any proceeding of a civil nature determined in a district court or a court of a G resident magistrate, on application being made in that behalf by any party or of its own motion, if it appears that there has been an error material to the merits of the case involving injustice, revise the proceedings and make such decision or order therein as it sees fit.' H

There is a proviso to the effect that an order shall not be made to the adverse interest of a party without being given an opportunity of being heard.

We must admit that it is difficult to reconcile ss (1)(b) of s 44 of the Magistrates Courts Act with s 79(1) of the CPC. And yet, ss (2) of s 79 of the latter legislation expressly saves the revisional powers I

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RAMADHANI JA

A of the High Court under the Magistrates Courts Act. Section 79(2) provides:

'(2) Nothing in this section shall be construed as limiting the High Court's power to exercise revisional jurisdiction under the Magistrates Courts Act, 1963.' B

We have not been referred to any authority which has decided on these two provisions. The reconciliation of the two sections is not an issue before us. These enactments were cited to us by way of analogy to help us determine when the right of revision is available under s 4(2) of the Appellate Jurisdiction Act. But, as C we have said earlier, we cannot find that assistance from the provisions cited to us.

The issue we have to decide, also arose in this court in M/s Jewels & Antiques (T) Ltd v M/s National Shipping Agencies Co Ltd (1). The applicant obtained an D ex-parte judgment against

the respondent in Civil Case No 51 of 1984 in the High Court at Arusha. However, he found some errors in that judgment and sought a review to correct them by filing, in the same court, Misc. Civil Application No 14 of 1991. The errors apparent on the judgment and decree were corrected. A year later he filed Misc. Civil Application No 57 of 1993 in the same court seeking to E correct errors due to a accidental slip or omission in Misc. Civil Application No 14 of 1991. The matter went before the same judge who dismissed the application because what was complained against was not an accidental omission but was a specific finding by which the prayer was refused for lack of supporting material. The learned judge was thus functus officio. F
So, the applicant sought to come to this court to appeal against the decision in Misc Civil Application No 57 of 1993. He first filed a notice of appeal and then sought leave to appeal to this court but that was refused by the High Court. The G applicant then approached this court through revision in Revision No 26 of 1994.
At the hearing, the learned advocate for the respondent had a preliminary objection containing inter alia, a ground that the applicant cannot use the revisional H jurisdiction of this court as he had already filed a notice of appeal in this very court.
The preliminary objection was upheld on another ground. Nevertheless, this Court, with respect to the ground mentioned above, had this to say:

'We are satisfied that this ground is misconceived. As we have I

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RAMADHANI JA

indicated earlier in this judgment, the applicant resorted to the revisional jurisdiction of this A court when the appellate door was blocked by the dismissal of his application for leave.'

That means: if the applicant had been granted leave to appeal, and so earned the right to appeal, then that would have barred him from the revisional jurisdiction of this court. That is, revisional jurisdiction is exercisable only where there is no right B of appeal.
It has to be remembered that in that application the applicant did not have an automatic right of appeal. He had to earn that right through leave. In the present application before us, however, TEL had an automatic right of appeal but owning to his own fault he was unable to utilise it. C
The appellate jurisdiction and the revisional jurisdiction of this court are, in most cases, mutually exclusive. If there is a right of appeal then that has to be pursued and, except for sufficient reason amounting to exceptional circumstances, there D cannot be resort to the revisional jurisdiction of this court. The fact that a person through his own fault has forfeited that right cannot, in our view, be an exceptional circumstance. If a party does not have an automatic right of appeal then he can use the revisional jurisdiction after he has sought leave but has been refused. However, the court may, suo motu, embark on revision whether or not the right of E appeal exists or whether or not it has been exercised in the first instance.
In the circumstances the preliminary objection is upheld. This application is misconceived and is therefore dismissed with costs for two counsel. F

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[zRPz]AGROVETY AND CONSTRUCTION CO LTD v SALUM SAID KLEB 1995 TLR 168 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mwaikasu J

Civil Case No 173 of 1990 B
June 1995
Flynote
C Civil Practice and Procedure - Pleadings - Application for Amendment of Written Statement of Defence - What court to take into account when deciding whether or not to allow an application to amend a written statement of defence - Order 6 r 17 of the Civil Procedure Code.
-Headnote
D In this case the High Court considered the facts it should take into account when exercising its discretion whether or not to grant an application to amend pleadings.
Held:
E (i) The import of the provision under Rule 17 of Order VI of the Civil Procedure Code is that though a court has been vested with a discretion to grant an amendment as applied for by either party, such discretion may only be exercised where the amendment appears to the court to be necessary for the purpose of determining the real questions in controversy between the parties;
F (ii) The intended amendment in this case is unnecessary for the purpose of determining the real question between the parties.
Case Infomation
Application dismissed.
Cases referred to:
G (1) Eastern Bakery v. Casteling [1948] EA 461
(2) Australian Steam Navigation Co Ltd v. Smith & Sons [1889] 14 AC 316
Muccadam for applicant.
Dr Lamwai for respondent.
[zJDz]Judgment
H Mwaikasu, J:
This is an application for leave to amend a written statement of defence concerning the validity of the revocation of the defendant's right of occupancy in respect of the suit farmland. The intended amendment is also to include the pleading that the declaration sought by the plaintiff is time-barred. I
1995 TLR 169
MWAIKASU J
On the authority of Eastern Bakery v Casteling (1) which citation appears to be A incorrectly made, and the case of Australian Steam Navigation Co Ltd (2) at 318, it has been submitted by Mr Muccadam, learned counsel for the defendant/applicant that the position of the law is that in the interest of justice amendments to the Written Statement of Defense should be liberally

allowed. He therefore prayed that B the amendments sought be allowed particularly as the case was just starting.

That has been protested by Dr Lamwai, learned counsel for the plaintiff/respondent on the grounds that though conceding on the principle of law relating to amendments as laid down in the two cases cited above, and as also provided for under Order 6 rule 17 of the CPC in exercising its discretion to grant amendments, C the court must look at the pleadings to determine whether the amendment is necessary as the purpose of an amendment is to assist the court to determine the real issue in controversy between the parties. To that end Dr Lamwai has D submitted that counsel for the defendant/applicant had failed to show the purpose to be served by the amendment in this case.

It has been further argued by counsel for the plaintiff/respondent inter alia that the amendment sought is intended to supply evidence that the allocation was wrong E and bad in law adding that the same could easily be supported by production of the revocation order as evidence for the same. A further contention for the plaintiff/respondent is that the combined effect of the defendant/applicant's pleadings in para 2 of the WSD which is to the effect that he has at all times been F the lawful owner of the disputed land, producing a copy of the certificate of right of occupancy in support thereof, and in para 3 of the WSD which is to the effect that the disputed land had been wrongly allocated to the plaintiff/respondent, for which annexure 'A' would make valuable evidence in court, is to bring up in the pleadings such issue of the unlawfulness of the revocation of the G defendant's/respondent's title to the disputed land.

As regards the issue of limitation which has not been pleaded in the WSD but also the subject of the intended amendment, it has been argued for the plaintiff/respondent that the same could still be argued after simply serving the H plaintiff/respondent with notice of the intention to plead the same at the hearing.

Other arguments for the plaintiff/respondent border on the merits of the case and therefore have been omitted for the purpose of this ruling.

Accordingly counsel for the plaintiff/respondent has prayed to I

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MWAIKASU J

A have this application for leave to amend the WSD dismissed with costs for being not necessary.

In determining this application the first reference point is the provision under Order 6 rule 17 of the CPC. It is there provided as follows and I quote:

B 'The court may at any stage of the proceedings allow either party to alter or amend his pleadings in such manner and on such terms as may be just, and all such amendments shall be made as may be necessary for the purpose of determining the real questions in controversy between the parties. (Emphasis supplied.) C

As I take it, the import of the provision under rule 17 of Order 6, of the CPC above quoted is that though a court has been vested with a discretion to grant an amendment as applied for by either party, such discretion may only be exercised where the amendment appears to the court

to be necessary for the purpose of D determining the real questions in controversy between the parties.

To the same effect was the decision of their Lordships in the case of Australian Steam Navigation Co Ltd v Smith & Sons (2) at 319, where they had this to say: E

'Their Lordships are strong advocates for amendment whenever it can be done without injustice to the other side, and even where they have been put to certain expense and delay, yet if they can be compensated for that in any way, it seems to their Lordships that an F amendment ought to be allowed for the purpose of raising the real question between the parties. That however is in the discretion of the court.' (Emphasis supplied).

G In the light of the undisputed pleadings before this court relating to proceedings in Misc. Civil Case No 76 of 1985, whereby the revocation of the defendant/respondent's title to the disputed land was challenged by the defendant/respondent and the matter was then resolved in his favour, the intended amendment relating to the validity of such a revocation in no way can help this H court in determining the real question in controversy between the parties. In fact, were that to be allowed it could be embarking on an improper procedure for challenging the validity of such revocation. For the proper procedure is the one that was adopted in Misc Civil Case No 76 of 1985, by which such revocation said to be wrongful was challenged by way of prayers for the issuance of prerogative orders of certiorari. It is to be noted that even if such procedure were to be I

resorted to that cannot be done by way of defence in the suit before this court, as A that would be an improper procedure. And above all a revival of such contention would not be entertained for being res judicata in relation to Misc Civil Case No 76 of 1985

I therefore rule that the intended amendment of the defendant/applicant's WSD in order to raise the question of alleged wrongful revocation of the B defendant/applicant's right of occupancy on 8 August 1983, in respect of the disputed farmland is unnecessary for the purpose of determining the real question between the parties in this case.

The question of limitation being a point of law, though not pleaded in the WSD, C may, as counsel for the plaintiff/respondent has rightly pointed out, be raised at any other stage in the course of the hearing of the suit subject to reasonable notice to the other party of the intention to raise such an issue. It is not therefore one that calls for the amendment of the pleadings as a matter of necessity, for the purpose of determining the real question in controversy between the parties. D

Accordingly I rule that neither does the question of limitation call for the amendment of the defendant/applicant's WSD as a necessary measure for the purpose of determining such issue in controversy between the parties. E

In the circumstances I dismiss this application with costs. Order accordingly. F

A

[zRPz]HEMED ABDALLAH v REPUBLIC 1995 TLR 172 (CA)

Court Court of Appeal - Dar Es Salaam
Judge Makame JJA, Omar JJA and Lubuva JJA B

Criminal Appeal No 167 of 1994 C
June 1, 1995
(From the decision of the High Court of Tanzania at Dar es Salaam, Bahati, J)
Flynote
Evidence - Confession - Retracted confession - Court accepts such evidence - Court warns itself of the danger of convicting on the basis of the uncorroborated retracted confession - Whether Court must give reasons. D
-Headnote
The High Court convicted the appellant of murder on the basis of his retracted confession. Before convicting the court warned itself of the danger of basing the conviction on an uncorroborated retracted confession. On appeal the appellant argued that the trial court's conviction should be faulted because the learned Trial Judge did not give reasons why he relied on the uncorroborated confession. E
Held:

(i) Generally it is dangerous to act upon a repudiated or retracted confession unless it is corroborated in material particulars or unless the court, after full consideration of the circumstances, is satisfied that the confession must but be true; F

(ii) Once the trial court warns itself of the danger of basing a conviction on uncorroborated retracted confession and having regard to all the circumstances of the case it is satisfied that the confession is true, it may convict on such evidence without any further ado; G

(iii) It is not a requirement of the law that reasons have to be given for the trial court's finding that there is no danger in accepting a retracted confession;

(iv) The learned Trial Judge found no danger in founding a conviction on the confessional statement because he was satisfied that the confession was true. H

Case Infomation
Appeal dismissed.
Cases referred to:
(1) Tuwamoi v. Uganda [1967] EA 84
(2) Bombo Tomola v. R [1980] TLR 254 I
1995 TLR p173
LUBUVA JA
(3) Ali Salehe Msutu v. R [1980] TLR 1 A
(4) Hatibu Gandhi alias Captain Hatty Macghee, Criminal Appeal No 3 of 1986 (Unreported)
Kalolo for the appellant.
Kiwanga for the respondent. B
[zJDz]Judgment

Lubuva, JA, delivered the following considered judgment of the court:

In a trial before the High Court (Bahati, J) sitting in Dar-es-Salaam the appellant, Hemed Abdallah was charged with and convicted of murder contrary to s 196 of the Penal Code. He was sentenced to death. This appeal is against the conviction and sentence. C

Briefly, the facts of the case as established by the prosecution are simple. They are that the appellant and the deceased were man and wife who lived at Mlandizi, Kibaha District, Coast Region. At the trial the prosecution case against the D appellant was wholly based on the statement which the appellant had made to the police and the extra judicial statement. There was no witness who saw the appellant attacking the deceased. Rashid Abdallah (PW1) the elder brother of the appellant is the only witness whose evidence throws light on the background to the tragic death of the deceased and what happened shortly after the incident. According to PW1, the appellant and the deceased led an unhappy family life E because the appellant suspected the deceased, his wife, of having sexual affairs with other men. The appellant thus threatened to divorce the deceased but PW1 managed to effect a reconciliation between the appellant and the deceased. It was F PW1's further evidence that on the day of the incident which was not long after the reconciliation, PW1 called at the house of the appellant where he (PW1) found the deceased already dead with a serious injury on her head. PW1 also saw an axe stuck on the head of the deceased. The appellant was nowhere around the G scene of crime when PW1 arrived. He (appellant) was arrested the next day as he was coming from a nearby forest where he had been hiding.

As already indicated, the next crucial evidence against the appellant was the extra H judicial statement (Exhibit P1) which the appellant had made to the Justice of the Peace (PW3). In this statement, the appellant clearly admits killing the deceased by using an axe. A detailed narration of the event leading to the death of the deceased is set out in the statement.

At the trial defending himself in a sworn statement the appellant I

A retracted the extra judicial statement. He claimed that the statement was made under duress and that the police had forced him to repeat before the Justice of the Peace what he had stated in the statement to the police. Having retracted the confessional statement, the appellant vehemently denied any involvement in the death of the deceased. He further claimed that he could not have killed the B deceased because on 25 August 1984, when the incident took place, he had gone to the forest to check on his traps and returned home the following day when he found his wife dead. The learned Trial Judge after holding a trial within a trial was satisfied that the appellant had voluntarily made the extra judicial statement and that it was true. Consequently, the appellant was convicted on the basis of this evidence. C

In this appeal the appellant, who was represented by Mr Kalolo, learned counsel, filed two grounds of appeal. Firstly, it was contended that the trial court erred in law and fact in convicting the appellant on the basis of the repudiated and retracted D statements. Secondly, that the trial court erred in law in finding and holding that malice aforethought had been proved. In regard to ground one, Mr Kalolo, learned counsel submitted that as the appellant had

retracted the confessional statement to the Justice of the Peace, it was not enough for the Trial Judge to warn himself of E the danger of convicting on the basis of such evidence. The learned Trial Judge had to give reasons why he considered that there was no danger in basing a conviction on the evidence in this case. As no reasons were given in the instant case, Mr Kalolo, learned counsel, urged it was erroneous on the part of the learned F Trial Judge to convict the appellant solely on this evidence.

Responding to the appellant's argument on this ground, Ms Kiwanga, learned State attorney who appeared for the Republic, respondent maintained that the retracted extra judicial statement was properly admitted by the learned Trial Judge who had G followed the proper procedure in holding the trial within a trial. Furthermore, Ms Kiwanga, learned State attorney submitted that in coming to the conclusion to convict the appellant the learned Trial Judge was not influenced by one single H factor but had taken into account all the surrounding circumstances of the case. For instance, Ms Kiwanga pointed out the details of the sequence of events leading to the death of the deceased which were given by the appellant; the family life of the appellant and the deceased as given by Rashid Abdallah (PW1), the elder brother of the appellant; the question of torture was not raised at the trial within a trial and not with the Justice of the Peace I

and no marks of injuries were seen when the appellant was physically examined A by the Justice of the Peace. On the basis of these factors, Ms Kiwanga insisted the learned Trial Judge was justified in his finding that the confession was but true.

As the prosecution case against the appellant is solely based on the retracted confessional statement to the Justice of the Peace, we think the only issue in B disposing of this appeal to the propriety of admitting the retracted statement (Exhibit P1). In order to resolve this issue we think it is necessary to look at the various surrounding circumstances. In the first place, as correctly pointed out by Ms Kiwanga, learned State attorney, it is common ground that there was no C witness who saw exactly what happened at the scene of crime when the deceased was killed. Rashid Abdallah (PW1) the elder brother of the appellant came to the scene after the death had taken place, in which case he was not in a position to give evidence on what exactly happened at the time. All that emerges D from the evidence of this witness (PW1) is the historical background relating to the life of the appellant and the deceased prior to the death of the deceased. That being the case, it beats our imagination as to how all the details pertaining to the sequence of events leading to the death of the deceased were obtained and included in the appellant's extra judicial statement to the Justice of the Peace. Who else could have supplied such details if not a person who either saw the E incident or was involved in it. Here there was no other person who witnessed the incident which led to the death of the deceased. As the statement was made by the appellant, it is to our minds highly unlikely that somebody else other than the appellant could have fitted in all the details in the statement. F

That is not all. According to Yusuf S Mperella (PW3) the Justice of the Peace, when the appellant was brought before him (PW3), the appellant was cautioned that he was before a Justice of the Peace and that he was free to tell PW3 what G had happened in relation to the

incident if he so wished. There were no policemen around then but still the appellant did not raise the question of having been tortured or forced to make any statement by the police or anybody else. A physical examination by PW3 of the body of the appellant did not reveal any marks of H injuries on his body. In that situation, we think, and as correctly submitted by Ms Kiwanga, learned State attorney, the question of torture was nothing but an after-thought. We are not convinced that the learned Trial Judge can be faulted in his ruling that torture was not involved.

We will now deal with the main ground argued by Mr Kalolo, I

1995 TLR p176

LUBUVA JA

A learned counsel in this appeal. As already pointed out, Mr Kalolo had submitted and argued at considerable length that it was erroneous for the Trial Judge admitting and relying on uncorroborated confession in the extra judicial statement without giving reasons why he found no danger in convicting the appellant on the basis of the retracted statement. On this submission, we are constrained to say B that we find it attractive as well as novel. This is so because the law on retracted or repudiated confessions is settled. It is trite law that generally it is dangerous to act upon a repudiated or retracted confession unless it is corroborated in material particular or unless the court after full consideration of the circumstances is C satisfied that the confession cannot but be true. This cardinal principle which was, in our view and with respect, properly addressed by the learned Trial Judge has been restated in a number of cases by this court as well as the Court of Appeal for East Africa. Among others, see: Tuwamoi v Uganda (1), Bombo Tomola v R (2), D Ali Salehe Msutu v R (3), Hatibu Gandhi alias Captain Hatty Macghee v R (4).

On the basis of the principle set out in these cases, we are unable to accept Mr Kalolo's contention that the learned Trial Judge had to give reasons for his finding that it was not dangerous to found a conviction on the retracted confession. This is E so because there is no legal requirement that reasons have to be given by the trial court for accepting a retracted or repudiated confession. This principle was underscored by the Court of Appeal for East Africa in the Tuwamoi case (supra). In that case it was stated inter alia: F

'... a trial court should accept any confession which has been retracted or repudiated with caution, and must before founding a conviction on such a confession be fully satisfied in all the circumstances of the case that the confession is true ...' (Emphasis supplied). G

In our understanding, what is required is that in dealing with a retracted confession, once the trial court warns itself of the danger of basing a conviction on such evidence and having regard to all the circumstances of the case it is satisfied that the confession is true, it may convict on such evidence without any further H ado. This is what the learned Trial Judge did in the instant case. Addressing himself on this issue the learned judge said:

I have considered the danger of acting on a repudiated confession without corroboration. I have found no such danger because I am satisfied that the confession cannot be but true. I

1995 TLR p177

LUBUVA JA

From this it is clear to us that the learned Trial Judge found no danger in founding A a conviction on the confessional statement for the reason advanced, namely that he was satisfied that the confession was true. In that case, Mr Kalolo's submission that no reason was given by the learned Trial Judge in accepting the confessional statement is, with respect, unfounded. Reason had been given. At B any rate, as we have already shown, even if there was no reason advanced, we are satisfied that such being the position of the law on this point as amply demonstrated, the criticism raised by Mr Kalolo is, with respect, untenable. It is not a requirement of the law that reasons have to be given for the trial court's finding that there is no danger in accepting a retracted confession. Like the learned Trial C Judge, we are satisfied that taking into account all the circumstances of the case, the learned Trial Judge was justified in his finding that the extra-judicial statement was but true. It was properly accepted.

We will now briefly deal with the last ground of appeal. As filed, this is ground two. D In this ground, Mr Kalolo, learned counsel for the appellant argued that as the appellant and the deceased were not living harmoniously, the appellant was provoked by the deceased's behaviour of mimicking him (appellant). And so there was no malice aforethought on the part of the appellant, who should therefore have been found guilty of the lesser offence of manslaughter, Mr Kalolo argued. In E rebuttal, Ms Kiwanga, learned State attorney submitted that the background leading to the incident was such that the act of the deceased to mimic the appellant was not enough provocation. It was an intended act of killing Ms Kiwanga submitted. On the question of malice aforethought we need not labour much. Having taken the F view that the confessional statement was properly admitted, we are satisfied that there was sufficient evidence upon which to sustain the conviction of the appellant. The appellant killed the deceased with malice aforethought. We are settled in our minds that the learned Trial Judge was justified in his conclusion that on the facts of the case, the defence of provocation was not available to the appellant. This G ground is also rejected.

For these reasons we dismiss the appeal in its entirety. H

1995 TLR p178

A

[zRPz]HERMAN NYIGO v REPUBLIC 1995 TLR 178 (CA)

Court Court of Appeal - Mbeya

Judge Ramadhani JJA, Mfalila JJA and Lubuva JJA

Criminal Appeal No 15 of 1995 B

June 16, 1995

(From the conviction and sentence of the High Court of Tanzania, Mapigano, J) C

Flynote

Criminal law - Murder - Defence of provocation and self defence - When available.

Criminal law - Murder - Malice aforethought - Manifestations of.

-Headnote

D The appellant was convicted of murder by the High Court. In an unprovoked manner, using a heavy stick, he had hit the deceased hard on the head. Subsequently the deceased died. On appeal the appellant complained that the trial court should have accepted his defence of provocation and self defence and found him guilty of the lesser offence of manslaughter.

E Held:

(i) Normally the defence of provocation is available in circumstances which would otherwise constitute murder except for the sudden loss of control of oneself as a result of some act which provokes the accused person;

F (ii) There was no provocation at all involved in this case;

(iii) In the absence of a fight between the appellant and the deceased and that it was the appellant who started attacking the deceased with a heavy stick forcefully, the defence of self defence was not available either;

G (iv) The appellant's utterances that he was killing the deceased because of sorcery is a clear manifestation of malice aforethought

Case Infomation

Appeal dismissed.

No case referred to.

H Kapinga for the appellant.

Mbise for the respondent.

[zJDz]Judgment

Lubuva, JA: delivered the following considered judgment of the Court:

The High Court sitting in Iringa convicted the appellant of the murder of Musa Chatila. The incident took place at the village of I

1995 TLR p179

LUBUVA JA

Kaning'ombe within Iringa District. On 27 September 1992 at about 5.30 pm the A deceased had gone to a nearby pombe shop for refreshment. Ana Kabogo (PW1) was also present at the pombe shop. It would appear that at some stage while the deceased was exchanging greetings with PW1 somewhere outside the pombe shop, the appellant came armed with a bamboo club on his back. Without any B further ado, the appellant hit the deceased hard on the head. The deceased fell down unconscious. The appellant was heard by PW1 announcing: 'I am killing you because of your sorcery'. PW1 raised an alarm in response to which people came to the scene including Fidelis Mtende (PW2). The appellant was raging and C threatening other people. He was, however, subdued and arrested.

Charged with the offence of murder contrary to s 196 of the Penal Code, the appellant put up the defence of provocation and self-defence. In a sworn statement, he claimed that when he met the deceased at the pombe shop, the deceased struck the appellant. That the appellant wrested the stick from the D deceased and with the stick, he (appellant) hit the deceased on the head once. Furthermore, the appellant flatly denied that PW1 was present when the incident took place. The learned Trial Judge rejected the defence of self-defence and provocation and held that the appellant assaulted the deceased unlawfully with malice aforethought. The appellant was

accordingly convicted and sentenced to E death. He has appealed against the conviction and sentence.

Mr Kapinga, learned counsel who advocated for the appellant argued one ground of appeal. That is that the appellant should have been convicted of the lesser F offence of manslaughter and not murder. The reason, Mr Kapinga stated, was that the defences of self-defence and provocation were available to the appellant. He contended that the Trial Judge erred in not believing the defence of the appellant that he was attacked by the deceased. Mr Kapinga further argued that PW1 did not G indicate the time she had arrived at the scene and so it was possible that the appellant was attacked before her arrival. He urged the court to allow the appeal against conviction for murder and in substitution therefor a conviction for manslaughter be entered. H

The only issue for determination in this appeal is whether the defence of provocation or self-defence was available to the appellant. Otherwise, as informed from the bar by Mr Kapinga, the rest of the facts are not in dispute. It is common ground that the key witness for the prosecution is PW1. She was talking with the deceased when the appellant came, armed with a bamboo club and I

A started attacking the deceased. In her evidence, she is categoric that there was no fight initiated by the deceased as claimed by the appellant. She raised an alarm in response to which other people came to the scene where the deceased was lying on the ground unconscious. On this, she is fully supported by Fidelis Mtende (PW2) who was among the people who responded to PW1's alarm. PW2 found B the deceased in critical condition and the appellant who was there was arrested. As already observed, the learned Trial Judge found PW1 and PW2 as credible witnesses and consequently rejected the appellant's defence of provocation and self-defence.

C Mr Mbise, learned senior State attorney for the respondent Republic, had submitted that once the evidence of PW1 and PW2 is accepted as the learned Trial Judge did, the defence of self-defence and provocation is not available to the appellant.

D We accept Mr Mbise's submission that with PW1 and PW2 having been accepted as witnesses of truth by the Trial Judge who was in a better position to assess their credibility, we have no reason to differ from the Trial Judge's finding on the credibility of these witnesses (PW1, PW2). On the basis of this evidence (PW1 and PW2) is the defence of self-defence or provocation available to the appellant? Our answer is that it is not available. As correctly observed by Mr E Mbise, learned senior State attorney, in the absence of any quarrel or fight, in an unprovoked manner, the appellant hit the deceased hard with a heavy stick on a vulnerable part of the body i.e. the head. There is no basis upon which the appellant could avail himself of the defence of provocation or self-defence. F

At this juncture we wish to observe that normally the defence of provocation is available in circumstances which would otherwise constitute murder except for the sudden loss of control of oneself as a result of some act which provokes the accused person. This, as shown, was not the case in the instant case. There was no provocation at all involved. On the other hand, from the evidence, in the G absence of a fight between the appellant who started attacking the deceased

with a heavy stick forcefully, the defence of self-defence was as properly held by the learned Trial Judge, not available either.

H In all the circumstances of the case, there is no basis upon which to fault the learned Trial Judge in convicting the appellant of the offence of murder. The appellant's utterances that he was killing the deceased because of sorcery is in our view a clear manifestation of malice aforethought. The appellant was therefore properly convicted.

The appeal is devoid of any merit, it is dismissed in its entirety. I

1995 TLR p181

A

[zRPz]MOHAMED IDDI MJASIRI v MRS JAYALAMI J JOSHI 1995 TLR 181 (CA)

Court Court of Appeal - Zanzibar

Judge Makame JJA, Omar JJA and Mnzavas JJA

Civil Appeal No 1 of 1995 B

June 16, 1995

(From the judgment/decree of the High Court of Zanzibar, Hamid, CJ) C

Flynote

Civil Practice and Procedure - Review - Judgment of High Court appealed against - Appeal Court hears the appeal and makes a decision - Whether High Court judge can entertain an application to review his judgment already appealed against. D

Court of Appeal Rules - Review - Judgment of High Court appealed against - Appeal Court hears appeal and makes a decisions - Whether an application to review the judgment lies to the High Court - Rule 44 Court of Appeal Rules. E

-Headnote

After a High Court of Zanzibar judgment had been appealed against, heard and determined by the Court of Appeal of Tanzania the appellant made an application to the High Court of Zanzibar for review of its judgment. The learned Chief Justice declined to entertain the application to review his own judgment on the ground that he was functus officio. This appeal was lodged to challenge the decision of the Chief Justice declining to review his judgment. F

Held:

(i) The appellant went to the wrong forum which lacked jurisdiction and the learned Chief Justice took a correct view of the matter;

(ii) Since there is a Court of Appeal judgment on record one may not assail that judgment by way of review other than in the very court itself. G

Case Infomation

Appeal dismissed.

No case referred to.

Mbwezeleni for the appellant.

Kagambo for the respondent. H

[zJDz]Judgment
Makame, JA, delivered the following considered judgment of the Court:
This is an appeal from the decision of Hamid CJ in which the I
1995 TLR p182
MAKAME JA
A learned Chief Justice of the High Court for Zanzibar declined to review his own judgment for the reason that he was functus officio and also because in any event the application was time-barred.
The background to the case the learned Chief Justice had tried was that the husband of the present respondent and the father of the present appellant were friends and they both lived in Zanzibar. When in 1972 the respondent's husband B went away to live in Canada he left his house in the care of the appellant's father to whom he also gave a power of attorney. In October 1987 the appellant's father conveyed the property to himself and, a day later, to his son, the present appellant. C
In a suit to have the two conveyances nullified and the house declared part of her deceased husband's estate the present respondent succeeded. For the purposes of this appeal we do not consider it necessary to go into the specific findings made by the learned Chief Justice except to say that his decision was sustained by this court on appeal. D
The judgment of the High Court was delivered on 15 April 1993, that of the Court of Appeal on 25 November of that year and in January 1995 the present appellant sought to move the High Court to review its decision in view of the alleged discovery of a document which would have made the High Court arrive at a E different conclusion as it would have shown that the respondent's husband had received the proceeds of the sale of the house. The outcome of that effort was, as we have indicated, a failure to persuade the learned Chief Justice to review his decision. Before us the appellant is represented by Mr Mbwezeleni, learned F advocate while Mr Kagambo, learned counsel appeared for the respondent.
Mr Mbwezeleni assailed the High Court decision. He asserted that he properly went to the High Court under r 44 of the Court of Appeal Rules for review. A portion of the rule he relied on reads: G

> Whenever application may be made either to the court or to the High Court, it shall in the first instance be made to the High Court ...

H Mr Mbwezeleni contended that he had no choice but to proceed the way he did in view of the said rule. Mr Kagambo maintained that Mr Mbwezeleni has misconceived r 44 - the High Court had no power to review a Court of Appeal judgment, which was in effect what the High Court was being asked to do.
We are of the view that the answer to the question as to whether or not the appellant went to the correct forum for review is enough I
1995 TLR p183
MAKAME JA
to dispose of the appeal. In that case it would really be superfluous to deal with the A provisions of the Civil Procedure Decree, Cap 8, which relate to time scales.

The Court of Appeal considered the substantive judgment of the High Court and was satisfied that it was sound. The court added its own dimension by remarking that in any event, there was no proof that the alleged consideration of Shs 150,000/= had passed to the respondent's husband. B

The final judgment was that of the Court of Appeal and matters rested there. It was the judgment of that Court, if at all, which should have been sought to be reviewed. In that exercise, if the court was so minded, it could have made orders it C considered necessary to the High Court, or otherwise disposed of the matter. The High Court had gone into the issues on merit, on the basis of the evidence then available, and the Court of Appeal had received the appeal and heard it on the same basis. There is a Court of Appeal judgment on record and one may not D assail that judgment by way of review other than in the very court itself.

With respect, Mr Mbwezeleni's arguments have a severe limitation. Before one can construe r 44 in Mr Mbwezeleni's favour one has first to determine whether the High Court is an available forum for the application - that is, whether the E application he sought to make was one that 'may be made to the court or to the High Court', in the first place. The rule presupposes, quite obviously, the existence of jurisdiction in both courts, and not otherwise. We are clear in our view that the appellant went to the wrong forum which lacked jurisdiction and that the learned Chief Justice took a correct view of the matter. We wish only to add that s 129 of the Civil Procedure Decree Cap 8, to which Mr Mbwezeleni kindly drew our F attention, does not detract from the position we have stated.

We propose to be quite brief on Mr Mbwezeleni's valiant effort to come to us for review as an alternative in the same document he prepared and filed for appeal. G This court cannot be reached via the medium of a fishing expedition. A party which wishes to be heard by us must first determine how to get us grant him audience, and proceed accordingly. This would incidentally afford the other party opportunity to prepare himself appropriately. H

We dismiss the appeal with costs.

We wish to add, without being determinative, that we very much doubt whether the High Court would have reached a different conclusion even if the alleged communicated dated 23 October 1987 purportedly from the respondent's husband to the appellant's I

1995 TLR p184

MAKAME JA

A father, had been placed before him during the hearing of the case. Even if one assumes that it was authentic it would not escape one's attention that it was 'innocuous' and terribly inconclusive. The document makes no reference to a house at all, only that the writer was 'very happy that everything went well just as B we had agreed upon'. Besides, US $5000 translates into a sum very different from the alleged sale price of Shs 150,000/=. Mr Mbwezeleni essayed that one US $ was then around Shs 300 which would make US $5000 the equivalent of 1.5 million Shs, that is 10 times the alleged price. In fact we have made our own research and discovered that from October to December 1987 one US dollar was C worth only Shs 83.7174, so that US $5000 would be about Shs 418,000/=, which would still be a lot more than the alleged

price. There would therefore be no sound reason to surmise that the mysterious alleged sum of US $5000 related to a sale transaction over the suit property. D
1995 TLR p184
E
[zRPz]OLAFU WIKECHI v REPUBLIC 1995 TLR 184 (CA)

Court Court of Appeal - Mbeya
Judge Ramadhani JJA, Mfalila JJA and Lubuva JJA

Criminal Appeal No 178 of 1994 F
June 16 1995
(From the conviction and sentence of the High Court of Tanzania at Njombe, Mwalusanya, J) G
Flynote
Evidence - Identification of accused person - Identification done in the dark of night - Whether sufficient to found a conviction.
-Headnote
H The appellant was convicted of murder and sentenced to death. The Trial Judge founded his conviction on visual identification on a dark night. On appeal the appellant argued that the visual identification on the dark night should not have been relied upon to base a conviction.
Held: We are not convinced that the witness correctly identified the appellant; as such the case against the appellant was not proved beyond reasonable doubt as required by law. I
1995 TLR p185
MFALILA JA
Case Infomation
Appeal allowed. A
No Case referred to:
Mwangole for the appellant.
[zJDz]Judgment
Mfalila, JA: delivered the following considered judgment of the Court: B
The appellant Olafu Wikechi was convicted of murder by the High Court sitting at Njombe (Mwalusahya, J) and sentenced to death. His conviction was based on the evidence of a single identifying witness Martina Makasi (PW1), the wife of the deceased. C
The appellant's identification by the deceased's wife was not without difficulty as will be shown shortly. On the day in question, the appellant had in the morning visited the deceased's homestead. He had left after taking lunch prepared by PW1, one of the deceased's five wives. PW1 left for the shamba soon after D preparing lunch for the men. She returned home at 4.00 pm and found her husband's guest already gone. At about 5.00 pm the deceased asked her to take some liquor known as 'ulanzi' and a wick lamp to their old house which they had abandoned, telling her that he would be meeting his guest there. She complied with this instruction. At about 10.00 pm the deceased returned and told her to E accompany him to the old house and

meet his guest Mr Wikechi the appellant. She went with him to the old house where on arrival he told her to remain outside. While she was outside, she could hear voices of people talking inside the hut. Then suddenly she heard a bang from inside the hut as if something was falling, F then she heard the sound of a door being closed and locked from the outside. She saw two people who were locking the door and recognised one of them to be the present appellant. The two people ran away, but she was emphatic that although it was a dark night she was still able to identify the appellant particularly by the white G rubber shoes he was wearing. She raised an alarm and awakened her fellow wives. When they entered the hut they found their husband dead. The post mortem examination report indicated that the cause of death was head injury leading to brain damage and haemorrhagic shock. The appellant was arrested two weeks later in Mawande Village and charged with the murder of the deceased. H

In his defence at the trial, the appellant denied causing the death of the deceased whom he described as a long time dear friend. He said that he had no cause or reason to kill such a friend. He narrated his movements on the day in question saying that after leaving I

A the deceased's house that day, he had gone to Mawande Village where his other wife, Veronica lived, and it was there that he was arrested.

The Trial Judge accepted the identification of the appellant by PW1 which he described as having strong probative value. He found that it had been corroborated B by the deceased's earlier statement to her that he was going to talk with his guest at the hut. The learned judge also found the fact that the appellant was arrested at Mawande Village at the house of his concubine, added weight to the prosecution case. He therefore found that the case against the appellant had been proved beyond reasonable doubt and convicted him as charged. C

In this appeal, Mr Mwangele, learned counsel who advocated for the appellant, attacked these findings. In his view, the learned judge was wrong to rely on the visual identification by PW1 when conditions were so unfavourable and that he erred in finding that this identification had been corroborated. D

As we have already indicated, the identification of the appellant by PW1 is not without difficulty. She herself conceded that it was a dark night. If so, how then did she identify one of the attackers to be the appellant? The answer is supplied by her own evidence that she identified one of the two to be the appellant particularly E when she saw his white rubber shoes. Is this mode of identification really reliable on a dark night? She explained later when cross-examined that there was moonlight. But this answer complicated her evidence even further for she made it F clear that her evidence could not be relied upon if she could change it so easily. In one minute saying it was a dark night, in another saying there was moonlight.

The learned judge found corroboration of her evidence in two factors. First, that the deceased had told her that he was going to talk to his guest, Mr Wikechi, the appellant. The question is how truthful was PW1 in this. The trial court who saw G her believed her and found as a fact that the deceased had made the statement. But, this finding was made without evaluating her veracity particularly in view of the contradictions in other aspects of her evidence as we have

pointed out. We are therefore doubtful about her truthfulness. Secondly, that the appellant was arrested H in Mawande Village at the home of his concubine. We have not been able to appreciate the significance of this. Since there is no evidence to suggest that the appellant had gone to Mawande Village to escape arrest, we see nothing wrong or strange with the appellant deciding to proceed to the home of his concubine. I

1995 TLR p187

MFALILA JA

There is another matter which exercised our minds but only because we do not A share the trial court's conviction on the veracity of PW1. We thought it was very strange that the deceased should have asked his wife to accompany him to the hut to meet his guest the appellant only to ask her to remain outside the hut! And even if it is true that she accompanied the deceased to the hut at 10.00 pm, is it B necessarily true that one of the two men who came running out of the hut was the appellant, since she never had the chance of seeing them enter the hut? We also note that all the time the deceased was talking of 'his guest' not 'guests'.

For these reasons, we are not convinced as the trial court was that PW1 correctly C identified the appellant and that this identification was corroborated by independent credible evidence. In our view, the charge against the appellant was not proved beyond reasonable doubt as required by law and we accordingly allow the appeal, quash his conviction for murder and set aside the sentence of death imposed on him. We order him immediately released unless he is otherwise D lawfully held.

1995 TLR p187

F

[zRPz]THADEI MLOMO AND OTHERS v REPUBLIC 1995 TLR 187 (CA)

Court Court of Appeal - Mbeya

Judge Ramadhani JJA, Mfalila JJA and Lubuva JJA

Criminal Appeal No 53 of 1994 G

June 16, 1995

(From the conviction and sentence of the High Court of Tanzania at Mbeya, Mchome, J) H

Flynote

Evidence - Confession - Repudiated - Allegation of threats in extracting confession - Whether such confession admissible - Section 29 Evidence Act 1967.

Evidence - Corroboration - Confessions of co-accused - Must be corroborated before founding a conviction. I

1995 TLR p188

RAMADHANI JA

-Headnote

A Three appellants appealed against conviction of murder by the High Court. In convicting two of the appellants the court relied on retracted confessions which had been made

involuntarily but which the court admitted under s 29 of the Evidence Act, 1967. The third appellant was convicted on the basis of the statements made by the co-accused. On appeal two of the appellants challenged the trial court's admission of the repudiated confessions. The third appellant attacked his conviction which was based of the repudiated confessions of the co-accused. B

Held:

(i) Under s 29 of the Evidence Act 1967 an involuntary confession is admissible if the court believes it to be true;

C (ii) While s 29 cannot be invoked where actual torture was applied, in this case there was no proof of torture but only threats;

(iii) On the evidence the confessions of appellants 1 and 2 were true;

(iv) There was corroborative evidence to support the conviction of the third appellant on the basis of the repudiated confessions of his co-accused.

Case Infomation

D Appeal dismissed.

Cases referred to.

(1) Tuwamoi v. Uganda [1967] EA 84

E (2) Marcus Kisukuli v. R Criminal Appeal No 146 of 1993 (Unreported).

Mkumbe for the appellant.

Mbise for the respondent.

[zJDz]Judgment

F Ramadhani, JA, delivered the following considered judgment of the Court:

On 3 August 1988, Martin Mhenga, deceased, was on duty guarding a bridge on the Uhuru Railway at Mgololo, Mufindi District in Iringa Region. His company included Abdallah Selemani, PW7. They were attacked and robbed of their two G semi-authomatic machine guns (SMG) each with a magazine containing 30 rounds of ammunition. The deceased was killed in the process of the attack while PW7 was left seriously wounded.

H Four people were charged with the murder of the deceased. Three of them, the appellants here, Thadei Mlomo, Charles Nyimbo and Ben Sanga were convicted by the High Court of Tanzania at Mbeya (Mchome, J).

The learned judge was satisfied with the evidence before him. Somehow Charles Nyimbo, appellant 2, was arrested at Makambako on 3 October 1988 and that information was sent to the police in Iringa. ASP Kisika (PW1) in the company of S/Sgt I

Zakayo (PW2) went to Makambako to interrogate him. He admitted having A participated in a number of robberies including this one of the two SMGs which caused the death of the deceased. His camaraderie spirit broke down and we mentioned his co-participants. Appellant 2 said that he slashed PW7 with a panga and got hold of his gun. As the deceased emerged to give assistance to PW7, he was shot by Thadei Mlomo, appellant 1, and they took deceased's gun too. B

PW1 travelled to Dar-es-Salaam with appellant 2 who pointed out the houses of Ben Sanga, appellant 3 and that of appellant 1. Appellant 3 was arrested in his house but appellant 1 was not found in the indicated house. After that, PW1 returned to Iringa with appellants 2 and 3. C
The team of investigators, apart from PW1 and PW2 included
S/Sgt Semu (PW3), Inspector Gregory (PW4) and D/Sgt Jonathan (PW5). D
Appellant 3 in interrogation disclosed another participant at Matanana, Mufindi. PW1 failed to arrest that other person but he was told of a guest of that person from Dar-es-Salaam who happened to be appellant 1. So he was arrested. Appellant 1 led the investigators to the place where he had buried his gun and it was recovered. Appellant 3 failed to locate the place he had buried his gun. E However, appellant 1 pointed out that place which was very close to where he had hid his, and appellant 3 owned the unearthed gun. Both appellants 1 and 2 recorded extra-judicial statements, Exh P5 and Exh P6 respectively, before F Stephen Mbungu (PW6), a primary court magistrate. Appellant 2 also recorded a police caution statement, Exh P4. All three statements narrated the events as summarised above. Appellant 3, however, did not record any statement.
These statements were repudiated and the learned judge held a trial within a trial. The appellants alleged to have been tortured into making them. The learned judge relied on s 29 of the Evidence Act, 1967 and admitted them. G
In their defence the appellants flatly denied everything, even knowing one another. Appellant 1 said he only knew appellant 2 because they were both in the business of selling maize. H
The appeal was argued by Mr Mkumbe, learned advocate. He had four grounds of appeal. In the first ground the appellants complained that the learned Trial Judge erred in admitting the statements of appellants 1 and 2 since they were not voluntarily made. Grounds two, three and four objected the admission of a copy of a judgment of this court as evidence against the appellants. I
1995 TLR p190
RAMADHANI JA
A We shall deal first with the last three grounds. A judgment of this court (Exh P8) was used to secure the conviction of the appellants. In that judgment we consolidated a number of appeals and we upheld the district court of Iringa which convicted the appellants and other persons on their own pleas of guilty to certain charges of robberies. Mr Mkumbe submitted that it was not proper to do so while B Mr Mbise, learned senior State attorney, contended that it was proper.
It is our considered opinion that we do not have to resolve that issue. There is sufficient evidence to support the conviction even without Exh P8. So we leave that matter to be determined one way or the other in an appropriate appeal. C
The first ground of appeal challenges the statements which were produced at the trial. Admittedly, and as pointed out by Mr Mkumbe, appellants 1 and 2 repudiated their confessions at the trial. The learned Trial Judge found that the confessions D might have been obtained involuntarily. Nevertheless, he admitted them under s 29 of the Evidence Act, 1967. However, we agree with Mr Mbise that that was proper.
E May we start with s 27 of that Act which provides:

'27 (1) A confession voluntarily made to a Police Officer by a person accused of an offence may be proved as against that person.

(2) The onus of proving that any confession made by an accused person was voluntarily made by him shall lie on the prosecution. F

(3) A confession shall be held to be involuntarily if the court believes that it was not induced by any threat, premise or other prejudice held out by the police officer to whom it was made or by any member of the police force or by any other person in authority.' G

This section provides for the admission of a voluntary confession against the maker in a trial. It also prescribes when a confession is and when it is not voluntary. The onus of proving voluntariness is on the prosecution. H

However, an involuntary confession is also admissible if the Court believes it to be true. That is under s 29 which provides:

29. No confession which is tendered in evidence shall be rejected on the ground that a promise of threat has been held out to the person I

confessing unless the court is of the opinion that the inducement was made in such circumstances and was on such nature as was likely to cause an untrue admission of guilt to be made. A

It is doubtful that the legislator intended it to be 'a promise of threat' and not 'a promise or threat'. We think it is the latter and that the former is a typographical error. This section appears to us to encapsulate the principle enunciated in the B Tuwamoi's case (1). This is the section which Mchome, J used to admit the confessions of appellants 1 and 2.

Under s 27 once a confession has been proved to be voluntarily made then it C would appear a court will accept it as the truth. However, if a confession was involuntary, then it will be accepted under s. 29 if the court is of the opinion that the confession constitutes the truth. So, in the former section the truth of the confession is presumed by the court while in the latter the truth has to be conceived by the court. We may point out that this holding is not in conflict with our D previous decision in Marcus Kisukuli v R (2). There we said that s 29 cannot be used where there is actual torture. Here there was no proof of torture but only threats thereof.

The question for us is to determine whether the inducement was such as 'to E cause an untrue admission of guilt'. We have to determine whether the confession is true or not. First of all, what is contained in the statements as to what happened that fateful night at the bridge at Mgololo tallies with the evidence of PW7, the guard who survived the onslaught. Secondly, appellant 1 led the investigators to F the discovery of the two guns which were robbed from the deceased and PW7. The serial numbers of those guns (Exh P1 and Exh P2) are the same as the guns which were issued to the deceased and PW7 per the armoury register (Exh P3). So, the confessions of appellants 1 and 2 must be true. G

Mr Mkumbe pointed out that appellant 3 did not make a statement so he should not be convicted solely on the confessions of co-accused persons. We concede that. In such a case, the law requires corroboration. However, we say that there is corroboration. Though appellant 3

failed to pinpoint where he had buried his gun, he led the investigators to the same area where appellant 1 had buried his and H where later, appellant 1 unearthed the gun which had been in the possession of appellant 3. That cannot be coincidental. He actually possessed the gun, hid it and knew the location of hiding. Either genuinely or by pretence he failed to point out the exact spot he had buried it. When it was unearthed, I

1995 TLR p192

RAMADHANI JA

A appellant 3 owned it. He denied to have done that, but the learned Trial Judge believed the investigators. We have absolutely no reason to differ with him.

B So we dismiss the appeal in its entirety.

1995 TLR p192

C

[zRPz]DEUS MWESIGA v REPUBLIC 1995 TLR 192 (CA)

Court Court of Appeal - Mbeya

Judge Kisanga JJA, Mfalila JJA and Lubuva JJA

Criminal Appeal 31 of 1994 D

June 23, 1995

(From the conviction of the High Court of Tanzania at Mbeya, Mkude, J)

Flynote

E Criminal Practice and Procedure - Sentencing - Severe reprimand by employer and conviction by Court for the same wrong - Whether punished twice for the same offence.

-Headnote

F The appellant was severely reprimanded by his employer for fighting a fellow employee. The Court on its part convicted the appellant of doing grievious harm. The Court of Appeal considered whether the appellant was punished twice for the same offence.

Held: Severe reprimand did not constitute punishment for the offence of doing grievious harm created under the Penal Code. G

Case Infomation

Appeal dismissed.

No case referred to.

H Ndibalema for the appellant.

Mbise for the respondent.

[zJDz]Judgment

Kisanga JA, delivered the following considered judgment of the court:

Asha Sadiki (PW1) and Deus Mwesiga, the appellant in this appeal, were hospital workers and at the time of the incident they both were I

1995 TLR p193

KISANGA JA

in a hospital theatre assisting the doctor who was operating on a patient. A dispute A arose between the two leading to a flight in the course of which PW1 sustained injuries including a fractured jaw. The appellant was charged in the district court with the offence of doing grievous harm contrary to s 225 of the Penal Code. He was acquitted but on appeal to the High Court that decision was reversed. He was B convicted as charged and sentenced to six months' imprisonment. It is from that decision that this appeal is preferred.

Before us the appellant is represented by Mr Ndibalema, learned advocate while Mr Mbise, senior State attorney appeared for the respondent, Republic. C

Mr Ndibalema filed and argued only two grounds of appeal, namely that the appellant's defence of self-defence was wrongly rejected and that the appellant was punished twice for the same offence. On the first ground, counsel maintained that the appellant in his evidence had stated that during the fight PW1 pulled his D private parts. Learned counsel therefore contended that the appellant was in such circumstances entitled to assault PW1 the way he did in his endeavour to secure release from her grip.

The learned first appellate judge specifically considered that defence, and at E length, but rejected it as being an afterthought. We could not fault him because as he rightly argued, that allegation is not supported by any of the witnesses, numbering four altogether who were present at the theatre and witnessed the fight. What is more, the appellant never complained to these present at the theatre or to anyone whom he met immediately thereafter such as PW2 that PW1 pulled his F private parts. Again the appellant never suggested to PW1 in cross-examination that she pulled his private parts during the fight, and that adds to the view that the appellant's allegation has no truth in it. G

There was evidence that during the fight the appellant's trousers dropped down to the knees and Mr Ndibalema strenuously contended that the trousers were pulled down by PW1 during the fight and further urged us to find that PW1 must have pulled the appellant's private parts in the process. With due respect, however, we H cannot agree. If there was any act of pulling the appellant's private parts, such act would have been seen by the four witnesses who were present, and in particular by PW4 and PW8 who noticed the appellant's trousers dropped to the knees. Indeed the fact of the appellant's trousers dropping down was explained by PW8 on the ground that it was loose. That is to say the trousers was not secure enough I

A on the appellant's waist and therefore it could be expected to slip or drop during the fight.

The learned judge was therefore perfectly justified to reject the appellant's defence of self-defence and we can find no ground to interfere.

B On the second ground Mr Ndibalema submitted that his client was severely reprimanded by his employer for what he did, and so to convict him of doing grievous harm amounts to punishing him twice for the same offence. For this view he referred us to s 21 of the Penal Code which provides:

C '21. A person shall not be punished twice, either under the provisions of this Code or under the provisions of any other law for the same offence.'

D With due respect to the learned counsel, this submission is clearly misconceived. The severe reprimand alleged to have been issued to the appellant is no punishment prescribed either under the Penal Code or under any other law for the offence of doing grievous harm. It may very well be a disciplinary sanction which the appellant's employer was empowered by regulations or standing orders to impose on the appellant. That, however, did not constitute punishment for the E offence of doing grievous harm created under the Penal Code. This ground, therefore, is equally without merit.

In the event, we find the appeal to be without substance and accordingly we dismiss it in its entirety. F

1995 TLR p195

A

[zRPz]SEIF HOUSEHOLD STORE LTD v NEW MABAI STORE 1995 TLR 195 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Kyando J

Misc Civil Appeal No 2 of 1994 B

June 30, 1994

Flynote

Civil Practice and Procedure - Execution of decree - Stay of execution pending appeal against Decree of a Regional Housing Tribunal - Proper forum to lodge application for stay of execution. C

Civil Practice and Procedure - Execution of decree - Decree passed by Regional Housing Tribunal - Extent of powers of Resident Magistrate's Court - Order 21 r 24(1) Civil Procedure Code 1966. D

-Headnote

This was an appeal from a ruling of the Housing Appeals Tribunal (HAT) granting an application by the respondent for stay of execution pending an appeal to it (HAT) from the decision of the Regional Housing Tribunal of Dar es Salaam. Initially the respondent had lodged its application with a Resident Magistrate's E Court which dismissed it for want of prosecution. The High Court, on appeal, considered the extent of powers of the Resident Magistate's Court in entertaining applications for stay of execution of decrees passed by the Regional Housing Tribunal and also considered the proper forum to lodge such applications. F

Held:

(i) The Resident Magistrates' Courts' powers to entertain an application for stay of execution are limited to staying execution of a decree for only a reasonable time and for the purpose of enabling the judgment debtor to make an application to either the Regional Housing Tribunal which passed the decree or to the Housing appeals Tribunal, having appellate jurisdiction in respect of the decree or the execution of it; G

(ii) The Resident Magistrate's Court had no power to stay execution of the decree pending appeal;

(iii) The Resident Magistrate's Court's dismissal of the application did not H affect the respondent's right to apply for stay in the proper fora, either the Regional Housing Tribunal or the Housing appeal Tribunal

(iv) The application to the Housing Appeals Tribunal was properly entertained by that Tribunal having been filed after the appeal had been lodged.

Case Infomation

Appeal dismissed. I

1995 TLR p196

KYANDO J

A Case referred to:

(1) Joseph EA Mwakajinga v. Prakash Brothers Ltd HC DSM, Civil Revision No 6 of 1990

Maira for the appellants.

B Chandoo for the respondents.

[zJDz]Judgment

Kyando, J:

This is an appeal from a ruling of the Housing Appeal Tribunal (HAT) granting an application by the respondent for stay of execution pending an appeal to it (HAT) from the decision of the regional housing tribunal of Dar-es-Salaam region. C

Briefly the respondent was a tenant of the appellant in respect of commercial premises, a godown, in Dar-es-Salaam. The applicant then applied to the Regional Appeals Tribunal for an order to evict the respondent from the premises. The Regional Tribunal granted the application but the respondent was aggrieved. He D took steps to appeal to HAT and before the appeal was heard, he applied to the resident magistrate's court of Dar-es-Salaam at Kisutu for stay of execution of the decree of the Regional Housing Tribunal. The decree had been sent there for E execution. In the course of time the application had to be dismissed by the resident magistrate's court for want of prosecution whereupon the respondent filed an application in Housing Appeal Tribunal seeking again stay of execution of the F decree of the Regional Housing Tribunal. The application was made under r 15 of the Housing Appeals Tribunal (Appeals) Rules, 1987 and the Housing Appeal Tribunal granted it. The appellant was aggrieved, hence this appeal.

G In the memorandum of appeal to this court the appellant sets out five principal grounds of appeal. In the first ground he states that the learned chairman of the Housing Appeal Tribunal misdirected himself at law in failing to hold that the application was not properly before the tribunal. In the second ground of appeal he contends that the learned chairman erred in law in his interpretation of r 15(2) of H the Housing Appeals Tribunal Rules, 1987. In the third ground he says that the chairman misdirected himself at law in failing to hold that the Housing Appeal Tribunal and Regional Housing Tribunal has no execution power. In the fourth ground he contends that the learned chairman misdirected himself at law and fact by not holding that the applicant is a trespasser in the suit premises. And in the fifth ground he states that the learned chair- I

man misdirected himself in assessing who will suffer more hardship if the A application was decided in the issue of a third party.
Both parties are represented by counsel; the appellant is represented by Mr Maira, learned advocate and the respondent is represented by Mr Chandoo, learned advocate, counsel filed written submissions. B
By reg 6(6)(a) and (b) of the Regional Housing Tribunal Regulations 1990, execution of an order or decree of the Regional Housing Tribunal 'shall be through the court of a resident magistrate' and no execution proceedings can be commenced until after the expiry of the period of appeal provided either under the Rent Restriction Act, 1984 or the Regional Housing Tribunal Regulations. (Under C the regulations the period of appeal provided for is thirty days - see reg 10).
Then r 15 of the Housing Appeals Tribunal (Appeals) Rules (supra) provides: D

15 (1) An appeal shall not operate as a stay of proceedings under a decree or order appealed from except so far as the appeals tribunal may order, nor shall execution of a decree be stayed by reason only of an appeal having been preferred from the decree; but the appeals tribunal may for sufficient cause order stay of execution of such decree. E

(2) Where an application is made for stay of execution of an appealable decree before the expiration of the time allowed for appealing, the tribunal which passed the decree may on sufficient cause shown, order the execution to be stayed. F

(3) No order for stay of execution shall be made under subr (1) or subr (2) unless the appeals tribunal or the tribunal is satisfied that:

(a) substantial loss may result to the party applying for stay of execution unless the order is made; G

(b) the application has been made without unreasonable delay, and

(c) security has been given by the applicant for the due performance of such decree or order as may ultimately be binding upon him.

(4) Notwithstanding anything contained in subr (3) the appeal tribunals or the tribunal may make an ex parte order for stay of execution pending the hearing of the application. H

In his submissions Mr Maira argues that the respondent, having filed an application for stay of execution in the resident magistrate's court, he was bound to pursue it. Having failed to pursue it the court dismissed it and his remedies then were to seek to have the order of dismissal set aside and, if unsuccessful in that, to make an I

A appeal to this court against the order refusing setting aside. He says as an executing court the resident magistrate's court must be assumed to be having full powers of stay of execution of a decree passed by a Regional Housing Tribunal. Mr Maira says this was the intention of the legislature in conferring upon that court execution powers. He says in other words that the power to stay is implied in the power to execute. B

Mr Maira goes on to submit that by going to the Housing Appeal Tribunal with the application which was dismissed by the resident magistrate's court the respondent was forum shopping or the application was res judicata. He contends therefore that the Housing Appeal Tribunal erred entertaining it. Alternatively, he C contends the application should have been filed in the Regional Housing Tribunal and not in the Housing Appeal Tribunal because it was filed before the appeal to the Housing Appeal Tribunal had filed.

D To the above submissions Mr Chandoo for the respondent replies that the resident magistrate's court has no powers of stay of a decree passed by a Regional Housing Tribunal. He says the application he filed there was filed only for the purpose of stopping an execution which was being threatened before the E period of appeal, as provided for by the law, had expired. He says in effect that it was then left to lapse in the court and a proper application was then filed in the Housing Appeal Tribunal. He contends that the application to the Housing Appeal Tribunal was not res judicata.

F As for the submission that the application ought to have been filed in the Regional Housing Tribunal and not in the Housing Appeal Tribunal because the appeal had not been filed by the time when the application was filed, he says the appeal and the application were filed simultaneously.

G It is my view that the resident magistrate's court, as an executing court of decrees passed by Regional Housing Tribunals, has no general powers of stay in relation to those decrees. Its powers are limited and they are to the extent only as provided for in Order 21 r 24(1) of the Civil Procedure Code, 1966. Order 21 r 24(1) provides:

H '24 (1) The court to which a decree has been sent for execution shall upon sufficient cause being shown, stay the execution of such degree for a reasonable time, to enable the judgment debtor to apply to the court by which the decree was passed or to any court having appellate jurisdiction in respect of the decree or the execution thereof for an order to stay execution or for any other order relating to the decree or execution which might have been made by such court of first I

instance or appellate court if execution had been issued thereby, or if application for execution A had been made thereto.' (Emphasis supplied.)

So the resident magistrate's court's powers are limited to staying execution of a decree for only a reasonable time and for the purpose of enabling the B judgment-debtor to make an application to either the Regional Housing Tribunal, which passed the decree or to the Housing Appeal Tribunal, the tribunal having appellate jurisdiction in respect of the decree or the execution of it. This is what exactly happened in the instance case; the application to the court for stay was intended to enable the respondent to apply to the Regional the Housing Tribunal or C to Housing Appeal Tribunal for stay of execution pending appeal. The resident magistrate's court has no power, as an executing court, to stay execution pending appeal (see Joseph EA Mwakajinga v Prakash Brothers Ltd (1), decision by Mapigano, J which is to the same effect as the one I have made here). The D questions of applying for setting aside when the application

was dismissed by the resident magistrate's court and appealing if setting aside did not succeed do not arise therefore. The court had no jurisdiction in the matter. The respondent realised after he had filed the application there that he had gone to the wrong forum. He left the application to lapse therefore and went to the right forum, the E Housing Appeals Tribunal.

Was it premature to go to the Housing Appeals Tribunal? This depends of course on whether the application was made simultaneously with the appeal as Mr Chandoo contends or whether it was made before the appeal was filed as Mr F Maira contends. Unfortunately the papers of the application and appeal to the Housing Appeal Tribunal are not in the record of appeal here, but the following statement by the chairman of the Housing Appeals Tribunal does show that the application was filed after the appeal: G

'On 26 October 1993 he (the respondent) filed this application (for stay of execution of the decree of the Regional Housing Tribunal) after lodging his appeal No 85/93.' (Emphasis supplied.) H

So the application was lodged after the lodging of the appeal and this was well within the requirements of the rules.

I do not think having decided as above that I should consider the rest of the grounds of appeal. I consider that my above determinations fully dispose of the appeal and there is no need to consider the rest of the grounds in the memorandum of appeal. I hold in the final I

1995 TLR p200

KYANDO J

A result that the resident magistrate's court had no power to stay execution of the decree pending appeal. Its dismissal of the application made there by the respondent did not affect the respondent's rights to apply for stay to either the Regional Housing Tribunal or the Housing Appeals Tribunal. The application to the Housing Appeals Tribunal was properly entertained by that tribunal as it was made B after the appeal to it had been lodged. I therefore dismiss the appellant's appeal to this court with costs.

1995 TLR p200

D

[zRPz]GODWIN NDEWESI AND KAROLI ISHENGOMA v TANZANIA AUDIT CORPORATION 1995 TLR 200 (CA)

Court Court of Appeal - Dar Es Salaam

Judge Mnzavas JA

Civil Application No 57 of 1994 E

July 3, 1995

(For striking out Notice of Appeal from the decision of the High Court of Tanzania at Dar es Salaam, Maina, J) F

Flynote

Court of Appeal Rules - Notice of Appeal - Time within which to lodge such notice - Notice lodged one day out of time - Whether Court can allow the notice to stand.

-Headnote

G The respondent had filed a notice of appeal one day out of time and then prayed the Court to exercise its discretion to allow the notice of appeal to stand. The applicant argued that the notice of appeal be struck out as it offended the provisions of rule 76(2) of the Court of Appeal Rules, 1979.

H Held:

(i) The rules of court must prima facie be obeyed and in order to justify extending time during which some step in the procedure requires to be taken there must be some material on which the court can exercise its discretion;

(ii) In the present case the respondent's delay in filing his notice of appeal was due to an oversight, which is not a good reason for the Court to exercise its discretion under rule 3 of the Court of Appeal Rules; I

1995 TLR p201

Mnzavas JA

Case Infomation

Order accordingly A

Case referred to:

(i) Ratnam v Cumarasamy and Another [1964] 3 All ER 933

Kashumbugu, for the applicant. B

Safari, for the respondent.

[zJDz]Judgment

Mnzavas, J.A., read the following ruling:

In a notice of motion under r 82 of the Court of Appeal Rules Mr Kashumbugu, C learned counsel for the applicant argued that the notice of appeal filed by the respondent be struck out, as it was argued it offends r 76(2) which says that notice of appeal should be lodged in court within 14 days from the date of the judgment. It was the learned counsel's submission that in the present case notice was lodged in the court's registry 15 days after the judgment, i.e. one day out of time. D

In rebuttal Mr Safari, learned counsel for the respondent conceded that the notice of appeal was lodged one day out of time. He, however, told the court that the notice was intended to be filed on 21 June 1994 but by an oversight it was filed on E 22 June 1994.

Mr Safari asked the court to exercise its discretion under r 3 of the Court of Appeal Rules and allow the notice of appeal to stand as it is only one day out of time.

In reply Mr Kashumbugu, learned counsel for the applicant countered that the F learned counsel for the respondent should have applied for extension of time to file his notice of appeal after he had learnt that he was already out of time instead of asking the court to invoke its powers under r 3 of the Court of Appeal Rules.

With respect to the learned counsel for the respondent this is not a proper case for the court to invoke its powers under r 3 of the Court of Appeal Rules even if that G rule could be called in aid of the respondent.

As it was held Ratnam v Cumarasamy and Another (1) at 935 -

'The rules of court must prima facie be obeyed and, in order to justify a court in extending time H during which some step in procedure requires to be taken there must be some material on which the Court can exercise its discretion. If the law were otherwise any party in breach would have an unqualified right to extension of time which would defeat the purpose of the rules which is to provide a timetable for the conduct of litigation.' I

1995 TLR p202

Mnzavas JA

A Rules are made to be followed. In the present case the respondent's delay in filing his notice of appeal was due to an oversight; this cannot be said with any stretch of the imagination to be a good reason for the court to exercise its discretion under rule 3 of the Court of Appeal Rules.

B I agree with Mr Kashumbugu's argument that the notice of appeal is incompetent and it is accordingly struck out as incompetent. The applicant to have his costs.

1995 TLR p202

D

[zRPz]MARY KIMARO v KHALFANI MOHAMED 1995 TLR 202 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Mwaikasu J

Misc Civil Case No 83 of 1992 E

July 28, 1995

Flynote

Civil Practice and Procedure - Appeals - Application for leave to appeal out of time - Copy of proceedings not received - When limitation period begins to run. F

-Headnote

This was an application for leave to appeal out of time. The reason advanced for the application was that though a copy of judgment had been supplied, a copy of G the proceedings was yet to be supplied and thus it was not possible to frame a sound memorandum of appeal. The application was resisted on the ground that the applicant did not get a copy of the proceedings because he had not paid for it.

Held:

(i) A copy of proceedings and a copy of judgment are necessary for the purposes of framing a sound memorandum of appeal; H

(ii) It is from the time of supply of both such documents that the limitation of time for appeal begins to run.

Case Infomation

Order accordingly.
Cases referred to:
(1) Hasham Harji v. Katocha [XIX], KULR 20 I
1995 TLR p203
MWAIKASU J
Marandu for the applicant. A
Kinguji for the respondent.
[zJDz]Judgment
Mwaikasu, J:
This is an application for leave to appeal out of time. It has been contended by Mr B Marandu, learned counsel for the appellant that upon delivery of the judgment of the lower appellate court on 7 May 1992, on the same day the lower appellate court was notified of the intention to appeal, copied to the counsel for the respondent, and such notice was received on the same day. A copy of judgment C of the lower court was received on 3 July 1992, but no copy of proceedings was then supplied, for the reason that it had not been typed. That is also confirmed by the record of the lower appellate court, as per endorsement made on Mr D Marandu's letter dated 3 July 1992, on the same day to the effect that copies of the proceedings and judgment of the primary court should be supplied first and then district court proceedings should be typed and supplied at the earliest. That then, it has been contended, made it difficult for the appellant to frame a proper and sound memorandum of appeal. Mr Marandu further contended that on 3 August 1992 E another reminder was sent to the lower appellate court, requesting the supply of the copy of proceedings but the same had not yet been supplied even by 10 August 1992 when this application for leave to appeal out of time was filed. That again appears to find support in the record of the lower appellate court, as per endorsement on Mr Marandu's letter of 3 August 1992, whereby the DM minuted to F the civil section that they should ensure that such request is met after payment of necessary fees. Such endorsement is also dated 3 August 1992. Mr Marandu further contended that by the time this application was being presented they had not yet been supplied with such copy of proceedings to enable them to formulate G their grounds of appeal and that it was difficult to do so on the basis of the copy of the judgment alone as he was not present when the appeal was argued. On the above grounds the learned counsel prayed for an extension of time to run to such time that the copy of proceedings shall have been supplied. H
That has been opposed by Mr Kinguji, learned counsel for the respondent on the grounds, inter alia, that the failure of the appellant to have copy of proceedings was due to the fact that he demanded the same through correspondence when he had not paid for them. He then referred this court to the case of Hasham Larji v I
1995 TLR p204
MWAIKASU J
A Kotecha (1) where it was decided that it is not sufficient to simply apply for copy of proceedings and then rest without taking any further action to procure the same.

As rightly contended by the learned counsel for the appellant, it is evident from the facts as observed above that the case cited before this court by the learned B counsel for the respondent as authority for defeating this application is clearly distinguishable from the facts of this case. For it is evident as also noted from the record of the lower appellate court that by 3 August 1992 such copy of C proceedings had not yet been ready for the supply to the appellant, despite frequent reminders. The appellant cannot in the circumstances be held to be responsible for the delay in obtaining copy of proceedings from the lower appellate court. It is the lower appellate court which has contributed to such delay.

D No doubt, copy of proceedings along side with copy of judgment are necessary for the purposes of framing a sound memorandum of appeal. It is from the time of the supply of both such documents that the limitation of time for appeal runs.

Accordingly I find that this application has merit. It is accordingly allowed and the appellant is hereby granted extension of time of his appeal to run from the date he E receives the copy of proceedings from the lower appellate court. It is, however, noted that such copy of proceedings have now been typed. The appellant should therefore arrange at the earliest to procure them on payment of the necessary fees.

Order accordingly. F

1995 TLR p205

A

[zRPz]NJORO FURNITURE MART LTD v TANZANIA ELECTRIC SUPPLY CO LTD 1995 TLR 205 (CA)

Court Court of Appeal - Arusha

Judge Nyalali CJ, Makame JJA and Kisanga JJA B

Civil Appeal No 39 of 1993

August 3, 1995

(From the decision of the High Court of Tanzania at Arusha, Munuo, J). C

Flynote

Tort - Damages - Whether to include an element to offset the effect of inflation and devaluation.

Civil Practice and Procedure - Costs - Court awards half of the costs of the suit - Whether proper. D

Civil Practice and Procedure - Interest - From date of filing suit to date of final judgment - Interest on judgment debt.

-Headnote

The trial High court awarded a sum of Shs 728, 154/70/ = being part of the special E damages claimed by the appellants, plus half of the costs of the suit and 10% interest payable 'from the date of judgment to the date of final settlement'. The appellant appealed to the Court of Appeal against the quantum of special damages awarded, half of the costs of the suit without assigning any reasons, and failure of the Trial Judge to award 'interest at bank rate on the decretal sum

calculated from the date of filing the suit to the date of final judgment'. The Court of Appeal upheld the quantum awarded by the Trial Judge. On the other points raised: F

Held:

(i) Since in principle the quantum of damages has to be such as to restore an injured party, as far as possible, to the position prior to the injury, it is correct in law to include in the award of damages an element calculated to offset the effect of inflation and devaluation; G

(ii) Costs follow the event; where the court directs that any costs shall not follow the event the court shall state its reasons in writing.

(iii) It is apparent from the provisions of s 29 of the Civil Procedure Code, H read together with rule 21 of Order 20 of the same code that interest is payable on a judgment debt 'from the date of delivery of the judgment until the same shall be satisfied', at the rate of seven percentum per annum or not exceeding twelve percentum as agreed by the parties in writing or by consent;

(iv) The trial court was in error in making a direction for '10% interest from the date of judgment to the date of final settlement' in the absence of agreement by the parties; I

1995 TLR p206

NYALALI CJ

A (v) The appellant is entitled to interest at bank rate from the date of filing the suit to date of delivery of judgment.

Case Infomation

Appeal allowed in part.

Case referred to:

B (1) Kioka Ltd v. De Angelis [1969] EA 7

Jonathan for the appellant.

Maro for the respondent.

[zJDz]Judgment

C Nyalali, CJ delivered the following considered judgment of the Court:

This is an appeal by Njoro Furniture Mart Ltd, hereinafter called the appellant, against part of the judgment and decree of the High Court at Arusha where the appellant had instituted a suit against Tanzania Electric Supply Co Ltd, hereinafter D called the respondent. The suit was for payment of special and general damages arising out of alleged negligent conduct on the part of the respondent, plus costs and interest. The trial High Court, Munuo, J awarded a sum of Shs E 728,154/70/= being part of the special damages claimed, plus half of the costs of the suit and 10 per cent interest payable 'from the date of judgment to the date of final settlement'. The remainder of appellant's claim was rejected by the High Court. Appellant was aggrieved, hence this appeal to this court. Mr Jonathan, learned advocate, represents the appellant in this appeal, whereas Mr Maro, F learned advocate, represents the respondent. 12 grounds of appeal were submitted and argued in the appeal before us.

G It is common ground that on 17 September 1989 the carpentry workshop of the appellant at Njoro, otherwise known as Maili Sita, in Moshi municipality was gutted by fire some time after the respondent's employees had attended to the electricity line and transformer serving the

appellant's carpentry workshop. That fire also damaged the property of the appellant's neighbours. Subsequently, at a meeting H held between the respondent's representatives on one side and the appellant and its neighbours on the other side, the respondent, through its representatives, admitted liability and agreed to compensate the appellant and the neighbours for the damage suffered. Prolonged negotiations and communications regarding the quantum of damages took place between the appellant and the respondent without success. I

1995 TLR p207

NYALALI CJ

It is common ground also that in the course of the negotiations for settlement of A claims, the respondent asked the appellant to give an estimate of the costs of repairing the damaged workshop; and an estimate of the loss of profits suffered as a consequence of the fire. In response to such requests, the appellant supplied to the respondent various estimates as per Exh P2, P9 and D6. Exh P2 is an B estimate prepared by a firm known as General Electric Service and signed by DW8 in respect of costs for 'repair and replacement of damaged motors and electric installation ...'. It is dated 18 January 1990 and puts the cost at Shs 1,261,808/=. Exh D6 is a similar estimate by the same firm, that is General C Electric Service, and is dated 25 July 1991. Exh D6 puts the cost for 'electrical repair' of the workshop at Shs 728,154.70/=. Exh P9 is an accountant's report prepared by one Anael Patrick Kavishe (PW3) of Masawe & Co Ltd, a firm of accountants and auditors, showing that the appellant had suffered loss of profits in the region of Shs 17,000,000/=. It is common ground that the appellant is a usual D client of Masawe & Co Ltd, on retainership basis.

Furthermore, it is undisputed between the parties that in the course of attempting to negotiate a settlement of the claims, the respondent also undertook its own E investigations of the damage and loss suffered by the appellant. Towards that end, one Mtoro Rajab Khalifan (DW6) prepared a report of the accounts of the appellant. That report, admitted at the trial as Exh D7, showed that the carpentry workshop business was running at a loss at the time of the fire incident. DW6 is a registered accountant employed by the respondent. F

It is the appellant's case that it is entitled to be paid not only the sum of Shs 1,261,808/= as per Exh P2, being the cost of restoring the carpentry workshop to normality, but the sum of Shs 17,105,394/= being the estimated loss of profits G arising from loss of sales to customers. Furthermore, it is part of the appellant's case that the appellant is entitled to be paid compensation for the loss likely to be suffered as a result of action likely to be taken by appellant's customers for failure to supply goods to the latter as agreed before the workshop was gutted by fire. Appellant further contends that any compensation paid by the respondent should H include an element to offset the effect of inflation and devaluation, plus interest at bank rate in order to put the appellant in the position it would have been had the workshop continued to operate.

The respondent's case on the other hand is to the effect that both estimates by the appellant as per Exh P2 and P9 are at best unreli- I

1995 TLR p208

NYALALI CJ

A able. It is respondent's contention that the estimate of the cost of restoring the workshop as shown in Exh P2 is fraudulent and grossly exaggerated. Furthermore, respondent contends that the true financial position of the workshop at the time of the fire incident is that it was a loss-making business as shown in Exh D7. Furthermore, it was part of the respondent's case at the trial in the High B Court that the appellant should have mitigated the damage by having the damaged workshop machines repaired and installed by General Electric Service, the firm which was apparently ready to repair and install the machines on credit.

C The first issue for consideration and decision in this case concerns the cost of restoring appellant's workshop to the working conditions it had prior to being gutted by fire. The only evidence relevant to decision of this issue is Exh P2 and D6. Both are estimates prepared by the appellant. The learned Trial Judge disregarded Exh D P2 on the ground that the person who signed it, that is DW8, was not sure of its contents as he claimed not to be conversant with the English language in which it was written. The learned Trial Judge, however, accepted the contents of Exh D6 as being more reliable and proceeded to award the sum shown therein that is Shs E 728,154/70/=. Bearing in mind that Exh D6 is a document prepared and supplied by the appellant in the course of negotiation to settle appellant's claims against the respondent, we find no basis for faulting the learned Trial Judge in that regard. We therefore find, as she did, that the cost of restoring the carpentry workshop to its working condition at the time Exh D6 was prepared is Shs 728,154/70/=. F

The second issue for consideration and decision is whether the appellant suffered loss of profits as a result of the fire. The learned Trial Judge does not appear to have specifically considered this matter when dealing with the 11 issues framed G for consideration by the trial court. Obviously the matter fell for consideration under issue No 9, that is, 'Has the plaintiff suffered loss of income and if so, to what extent?'. It would seem that the matter slipped from the attention of the learned Trial Judge apparently because she confined herself to only one aspect of the H issue - that is, appellant's alleged failure to mitigate damages. Obviously the issue of mitigation of specific damages arises only where loss is proved.

In the present case the only evidence relevant to the issue of loss of profits is to be found in the testimonies of PW3 and DW6 and the respective reports each prepared, that is Exh P9 and D7 respectively. The testimonies and reports of these accountants is diame- I

trically opposed to each other. One supports the contention that appellant's A venture was profitable before it was closed down. The other supports the contrary view that appellant's venture was making a loss at the material time. Unfortunately neither PW3 nor DW6 is an independent witness, because the former is a retained client who normally audits the appellant's accounts, and the latter is an employee of the respondent. We think that under these circumstances, where the B burden of proof is upon the appellant (as plaintiff in the case), the appellant has to show that PW3 and his report are more reliable than DW6 and his report. It seems to us that this was not done. It follows therefore that the appellant failed to prove on a balance of probabilities that he suffered loss of profits. C

The third issue is whether the appellant is entitled to be paid compensation for loss likely to be suffered as a result of claims likely to be made for failure to deliver goods to clients as agreed before the workshop was gutted by fire. The learned D Trial Judge found to the effect that the appellant had received confirmed orders for the manufacture and supply of sundry goods to clients before the workshop was gutted by fire. She however did not consider whether the appellant would suffer loss consequent upon possible claims by those clients. In our considered opinion E it seems that the appellant, on the evidence adduced at the trial, has a defence against such possible claims. The obvious defence is that of frustration of contract arising out of appellant's workshop being gutted by fire. It follows therefore that appellant is not entitled to compensation for possible claims. F

The fourth issue is whether any amount of money awarded to the appellant as damages should include an element to offset the effect of inflation and devaluation. We think that since in principle the quantum of damages has to be such as to restore an injured party, as far as possible to the position prior to the injury, it is correct in law to include in the award of damages an element calculated to offset G the effect of inflation and devaluation. As stated by Kemp and Mc Oustra, learned authors in their The Quantum of Damages, vol 1, 2nd ed, 'leaving authority aside, both principle and common sense require that the courts, when they H assess an award of money, which is to compensate a plaintiff for the damage caused to him by his injuries, should take into account large and comparatively permanent changes in real value, i.e. in the purchasing power of money'. Unfortunately in the present case, though appellant was represented by experienced counsel at the trial, no evidence or material was adduced at the trial upon which the rate of inflation or I

A devaluation could be determined. We are therefore unable to award any amount for inflation or devaluation.

The fifth and last issue before us is whether the trial court erred in awarding half of the costs of the suit instead of granting the full costs, and whether it erred in awarding interest at 10 per cent from the date of judgment to the date of payment, B instead of granting interest at bank rate from date of filing the suit to date of payment as prayed.

With regard to the matter of costs, Mr Maro, learned advocate for the respondent, argued in the appeal before us that the trial court was correct in exercising its C discretion by granting less than the full costs in favour of the appellant, on the ground that the appellant had failed to prove a substantial part or the claim contained in the plaint. Undoubtedly in our opinion, costs are within the discretion of the court as stated under s 30 of the Civil Procedure Code, 1966. It has, D however, long been established by the courts that costs normally follow the event. See case of Kiska Ltd v De Angelis (1). Moreover, under ss (2) of s 30 of the Civil Procedure Code, it is expressly stated that, 'Where the court directs that any costs shall not follow the event, the court shall state its reasons in writing.' E

The gist of appellant's complaint is that the court did not state its reasons in writing for directing only half of the costs to be paid. The complaint is justified. We have, however, to ask ourselves

what legal effect does this procedural error have? In our considered opinion, since the reasons for awarding less than the full costs in F favour of the appellant are so obvious, the error is curable. We thus cure the error by stating that the appellant, who was the plaintiff in the trial court, is entitled to half the costs of the suit by reason of failure to prove a substantial part of the claim.

G As to the matter of payment of interest, it is apparent from the provisions of s 29 of the Civil Procedure Code, read together with r 21 of Ord 20 of the same Code that interest is payable on a judgment debt 'from the date of delivery of the judgment until the same shall be satisfied.' Under r 21 of Ord 20, 'the rate ... shall H be seven per cent per annum or such other rate, not exceeding 12 per cent per annum as the parties may expressly agree in writing before or after the delivery of the judgment or as may be adjudged by consent'.

It is thus evident that the trial court was in error in making a direction for '10 per cent interest from the date of the judgment to the date of final settlement', in the absence of agreement by the I

parties. We are bound to intervene to correct this error. But before we do so, we A have to consider whether the appellant should be paid any interest for the period prior to judgment. Under s 29 of the Civil Procedure Code, a court has power '... to order interest to be paid up to the date of judgment at such rates as it may deem reasonable ...'. The appellant had claimed in the plaint, 'interest at bank rate on the B decretal sum calculated from the date of filing the suit to the date of final judgment.' We think under the circumstances of this case, the claim is fully justified. The appellant is entitled to interest at bank rate from the date of filing the suit to date of delivery of judgment. C

In the final analysis therefore, this appeal partly fails and partly succeeds to the extent that the appeal against the principal sum and costs filed, but the appeal against the order for payment of interest succeeds to the extend indicated above. Under the circumstances of this case, we think it is just that appellant be paid one-third of the costs of this appeal. D

F

[zRPz]ZAKARIA BARIE BURA v THERESIA MARIA JOHN MUBIRU 1995 TLR 211 (CA)

Court Court of Appeal - Arusha
Judge Nyalali CJ, Makame JJA and Kisange JJA

Civil Appeal No 40 of 1993 G
August 3, 1995
(From the decision of the High Court of Tanzania at Arusha, Munuo, J) H
Flynote

Land Law - Certificate of right of occupancy - Letter of offer of right of occupancy given jointly to husband and wife - Mortgage deed on right of occupancy executed jointly by husband and wife - Title deed issued in the name of husband alone - Whether proper.
Contract - Sale of a house jointly owned - One joint owner selling the house without the consent of the other - Whether title can pass. I
1995 TLR p212
A Contract - Illegality - Sale of a house - Two sale documents with one indicating a lower sale price with intention to defraud internal revenue - Contract void for illegality - Consequences thereof.
Evidence - Admissibility - Stamp duty - Sale of a house agreement - Sale document not bearing stamp duty - Whether admissible in evidence. B
Stamp duty - Sale of a house agreement - Sale document does not bear stamp duty - Whether admissible in evidence.
-Headnote
C This was an appeal by the appellant against the judgment and decree of the High Court of Tanzania at Arusha where the respondent had successfully instituted a suit against the appellant for a declaration that the sale of a house, which she had jointly acquired with her late husband in Arusha municipality, to appellant by her late husband was null and void. The respondent's late husband was able to sell the house because he had obtained the title deed to the plot of land in his own name although the letter of offer was in the joint names of the husband and the appellant wife, and the mortgage deed offered as security for a D loan from the Tanzania Housing Bank was executed in the joint names of the husband and wife. Two sale agreements were prepared and signed by the vendor and purchaser one of which indicated a lesser sale price in order to defraud internal revenue. The sale agreement did not bear any stamp duty. The Court of E appeal considered whether the title deed was fraudulently obtained and whether the sale agreement of the suit premises was of any legal effect.
Held:

(i) Since a certificate of right of occupancy can be mortgaged only by the owner or owners of the title, it must follow that certificate of title which F was the subject of the mortgage must have been in the joint names of respondent and her late husband; as such the title deed bearing solely the name of the respondent's late husband was obtained by deceit and for the purpose of depriving the respondent of her right in the suit premises;

G (ii) The sale agreement of the suit premises was of no legal effect because:

(a) the vendor, as joint owner, could not pass title of the house to the purchaser without the consent of the other joint owner, his wife;

(b) the making of the agreement under two sale documents intended to deceive the Treasury as to the proper tax liable to be paid for the transaction rendered the agreement illegal and therefore void ab initio and unenforceable. H

(c) the sale documents did not bear any stamp duty and were thus inadmissible in evidence.

(iii) Although the sale agreement was illegal the appellant purchaser was entitled to the sums of Shs 500,000/= which he paid under the illegal contract and which appeared to have been deposised in court by the respondent. I

1995 TLR p213

NYALALI CJ

Case Infomation

Appeal dismissed. A

Cases referred to:

(1) Miller v. Karlinski [1954] 62 TLR 85

(2) Napier v. National Business Agency [1951] 2 All ER 264

(3) Nizam v. Devonshire Stores [1958] EA 729

(4) Sunderji Nanji Ltd v. Mohamedali Kassam Bhaloo [1958] EA 762 B

Sang'ka for the appellant.

Bigeye for the respondent.

[zJDz]Judgment

Nyalali, CJ delivered the following considered judgment of the Court: C

This is an appeal by one Zakaria Barie Bura, hereinafter called the appellant, against the judgment and decree of the High Court at Arusha where the respondent, namely Theresia Maria John Mubiru had successfully instituted a suit D against the appellant. In that suit, the respondent sought a declaration to the effect that the sale of the house on Plot No 64 Block 21 Kaloleni in Arusha municipality between the appellant and respondent's late husband, namely John Lezon Mubiru, is null and void. She also sought vacant possession of the suit E premises and costs of the suit. The appellant on his side counter-claimed without success for damages on the ground of trespass by the respondent and in the alternative a refund of the purchase price of the suit premises. Aggrieved by the decision of the High Court, Munuo, J, he appeals to this court. He is represented F by Mr Sang'ka, learned advocate, whereas Miss Bigeye, learned counsel from the Tanzania Legal Corporation represents the respondent. Seven grounds of appeal have been submitted in support of the appeal.

It is common ground between the parties to this case that the respondent was the G wife of one John Lezon Mubiru who died in September 1986. Furthermore, it is common ground that sometime before that death, the married couple had agreed to jointly acquire a plot of land and build a matrimonial house thereon. Towards that end the couple applied for a right of occupancy in respect of Plot No 64 bloc 21, Kaloleni in Arusha municipality. In response to the application, the couple were H jointly given an offer of right of occupancy for a term of 33 years under a letter ref No ARD/1420/7/FAK dated 13 May 1977 from the Land Development Department in Arusha area commissioner's officer. That offer was produced at the trial as Exh P2. Furthermore, the couple jointly paid various I

1995 TLR p214

NYALALI CJ

A fees in satisfaction of the conditions stipulated in the offer of right of occupancy and were issued with receipts acknowledging such payments as shown in Ex P3.

It is also common ground that the house on plot No 64 Block 21, Kaloleni was built B through a loan given by the National Housing Bank on security of a mortgage of the title to the right of occupancy. That mortgage was contained in a mortgage deed produced at the trial as Exh P4. Furthermore, it is common ground that subsequently respondent's husband entered into a written agreement to sell the suit premises to the appellant. The agreement was dated 27 June 1984 and was in C two documents produced at the trial as Exh P8 and D1 for the respondent and appellant respectively. Both documents read the same except that the purchase price reads as Shs 500,000/= in Exh P8, whereas it reads as Shs 900,000/= in Exh D1. There is also an addendum in Exh D1 permitting the vendor to continue in occupation of the suit premises for a prescribed period. D

The respondent's case is that the agreement between the appellant and respondent's late husband was fraudulently made for the purpose of depriving the respondent of her rights in the suit premises. It is part of the respondent's case that in furtherance of that fraud, respondent's husband fraudulently obtained a title E deed, produced at the trial as Exh D3, purportedly issued in the sole name of respondent's husband, instead of the joint names of the respondent and her late husband. It is part of respondent's case that the appellant was either a party to or knew of the fraud. Furthermore, it is respondent's contention that the appellant is entitled, if at all, to a refund of only the purchase price of Shs 500,000/= shown in F Exh P3, which was deposited in court by respondent on receipt No ERV No 654854 dated 29 July 1988.

The appellant's case on the other hand is that the arrangement between the G respondent and her late husband to jointly acquire and build a matrimonial house collapsed as a result of matrimonial problems between the couple, and thereafter respondent's late husband proceeded alone to acquire the plot of land and alone H built the house in question. It is appellant's contention that no fraud was committed either in obtaining the title deed or the sale of the suit premises. It is part of appellant's case that he is entitled to vacant possession of the suit premises, or in the alternative, to a refund of the purchase price of Shs 900,000/= plus interest, and not the lower sum of Shs 500,000/=, which was shown in Exh P8 only for the purpose of enabling respondent's husband, as vendor, to pay less tax to the Treasury. I

1995 TLR p215

NYALALI CJ

It is apparent from the proceedings of this case that there are two main issues A upon which the outcome of this case depends. The first issue is whether the title deed, otherwise known as the Certificate to Right of Occupancy, produced at the trial by the appellant as Exh D3 was fraudulently obtained. The second issue is whether the sale agreement of the suit premises has any legal effect. B

Let us start with the first issue. The learned Trial Judge made no specific finding on it. The relevant evidence on this issue comprises the testimony of the respondent, supported by Exh P2 (letter of Offer of Right of Occupancy), P3 (four revenue receipts in respect of fees for Certificate of Title), P4 (the mortgage deed on Right of Occupancy title No 68-LRM) and P5 (payment voucher issued by C Tanzania Housing Bank for disbursement of loan). This evidence clearly shows that by the end of September 1977 there was a mortgage deed between the Tanzania

Housing Bank on the one side and the respondent and her late husband on the other side, under which the Right of Occupancy title No 686-LRM was D made a security for a loan of Shs 80,000/= by the bank to the respondent and her late husband. Consequent upon this mortgage, a sum of Shs 35,900/= was released to the respondent and her late husband on 21 October 1977 as per Exh P5. E

The question that arises here is in whose name or names was the Certificate of Title No 686-LRM supposed to be. Obviously, since a Certificate of Title of Right of Occupancy can be mortgaged only by the owner or owners of the title, it must follow that the Certificate of Title No 686-LRM which was the subject of the F mortgage must have been in the joint names of respondent and her late husband. The answer to the first crucial issue must therefore be that the Certificate of Title No 686-Land Registry Moshi (Exh D3) bearing solely the name of respondent's late husband was obtained fraudulently - that is by deceit and for the purpose of depriving the respondent of her rights in the suit premises. G

With regard to the second main issue, the learned Trial Judge specifically found that '... the late Mubiru had no capacity to solely sell the house to the defendant because the house was jointly owned by himself and his wife. Without the consent of his wife, the joint owner, the vendor could not pass the title of the house to the defendant purchaser'. H

We agree with the learned Trial Judge. We think that there are two other reasons why the appellant cannot obtain title to the suit premises on the basis of the sale agreement. The first reason was noted by the learned Trial Judge when she stated in a part of her I

A judgment '... The vendor and purchaser colluded and in pari delicto signed two different sale agreements in order to pass lower taxes. By agreeing to sign the Shs 500,000/= sale agreement, Exh P8, the purchaser stained his hands and tainted himself with illegality whether for his benefit or for the benefit of the vendor ...'.

B The learned Trial Judge of course did not sufficiently articulate the law concerning contracts aimed at defrauding the internal revenue. The law on this point, as established throughout the common law system, is that such contracts are unenforceable. See the case of Miller v Karlinski (1) and Napier v National C Business Agency (2). The contract of sale of the suit premises in this case was made under two documents aimed at deceiving the Treasury as to the proper tax liable to be paid for the transaction. Clearly such contract was void, without any legal effect right from the beginning. Of course this does not mean that the D appellant has lost everything including the money he paid as purchase price. In law, he is entitled to the sum of Shs 500,000/= which he paid under the illegal contract and which appears to have been deposited in court by the respondent.

E The second reason why the appellant could not have obtained the title to the suit premises, even if the sale agreement had not been tainted with illegality, is the fact that neither document containing the agreement bears any indication of payment of stamp duty according to the Stamp Duty Act. By law, such omission renders the sale agreement inadmissible as evidence in court, unless the party concerned pays the stamp duty before the document is admitted as evidence.

See the case F of Nizam v Devonshire Stores (3) and Sunderji Nanji Ltd v Mohamedali Kassan Bhaloo (4).
For all the reasons stated above, we are thus satisfied that this appeal has no merits whatsoever and must be dismissed in its entirety with costs. We order accordingly. G
1995 TLR p217
A
[zRPz]NIZAR SHELL L'ADAWY MUHANNA v REGISTRAR OF TITLES AND ANOTHER 1995 TLR 217 (CA)

Court Court of Appeal - Dar Es Salaam
Judge Omar JJA, Mnzavas JJA and Lubuva JJA

Civil Appeal No 33 of 1994 B
August 22, 1995
(From the judgment and decree of the High Court of Tanzania at Dar es Salaam, Kyando, J) C
Flynote
Land Law - Land Registration - Powers of Registrar of Titles - Whether the Registrar has power to determine issues as to land ownership - Section 105 of the Land Registration Ordinance. D
-Headnote
The Registrar of Titles mounted an investigation to establish the ownership of property as between the appellant and his late father. The Registrar purported to invoke powers under s 105 of the Land Registration Ordinance, Cap 334. After investigations the Registrar decided that the property belonged to the appellant's late father. The appellant's appeal to the High Court challenging the decision of the E Registrar was unsuccessful. On further appeal the Court of Appeal of Tanzania considered the powers of the Registrar under s 105 Land Registration Ordinance. F
Held:
(i) Section 105 of the Land Registration Ordinance only empowers the Registrar of Titles to determine questions regarding whether his register should be corrected or an entry therein cancelled; any other inquiry or investigation to be undertaken by him must be either expressly or impliedly authorized as required by the Ordinance or any rule made thereunder; G
(ii) The issue in this case involved the ownership of registered land and there is no provision both in the Ordinance and in the Rules which authorize or require the Registrar of Titles to make investigations and determine such substantial issues as land ownership; H
(iv) The investigation and proceedings by the Registrar were undertaken without jurisdiction, and were null and void; so too was the appeal to the High Court being grounded on incompetent proceedings.
Case Infomation
Appeal allowed.
No case referred to. I

1995 TLR p218
MFALILA JA
[zJDz]Judgment
A Mfalila, JA delivered the following considered judgment of the Court:
In this appeal the dispute is over a house built on plot No 766 United Nations Road, Upanga in Dar-es-Salaam. The Certificate of Title issued in respect of this plot is No 186174/85 in the name of one Nizar Shell L'adawy Muhanna. This is the B present appellant. The appellant is the son of the late Shell Muhanna who died at Muhimbili hospital Dar-es-Salaam on 9 April 1990 leaving a widow Jamilla Mohamed, the second respondent, but she is not the appellant's mother. The late Shell Muhanna had several wives, one of whom was the appellant's mother, although it appears that at the time of Shell's death she was no longer his wife. C
Sometime in 1991 the appellant saw a general notice in the Government Gazette of 29 March 1991 advertising the loss of a Certificate of Title in respect of plot No 766 in the name of Nizar Shell L'adawy Muhanna (deceased) and that the D applicant was one Jamila Mohamed. The general notice went on to inform the public that Certificate of Title No 186174/85 in respect of the above plot was lost and that unless cause was shown to the contrary within two months, a new Certificate of Title would be issued in its place. According to the appellant, when he E saw this notice, he was greatly distressed because firstly he was still alive, secondly the certificate alleged to be lost was in his possession as registered owner and thirdly the property was his. He therefore hurried to the offices of the Registrar of Titles to record his objections against the terms of the notice. The F second respondent, however, maintained that the property was part of her late husband's properties and that it was bequeathed to her in his will. The Registrar of Titles who is the first respondent was therefore faced with a dispute between the appellant and his stepmother, the second respondent on whether plot No 766 G United Nations Road, Upanga belonged to the appellant or his deceased father as to form part of his estate. Faced with this dispute, the Registrar of Titles mounted an investigation to establish the ownership of this property as between the appellant and his late father. He launched this investigation under what he called powers vested in him by s 105 of the Land Registration Ordinance. This section provides as follows: H

'105. Where any question arises as to whether any registration or entry should or should not be made, or whether any memorial inscribed in the land register should or should not be corrected or cancelled or where by this Ordinance or any rule made thereunder I

1995 TLR p219
MFALILA JA

the Registrar is expressly or impliedly authorised or required to inquire into, investigate, give A any decision on or exercise any discretion as to any matter, he may order any person -

(a) to attend before him at such time and place as he may appoint and be examined on oath which he is hereby authorised to administer; and

(b) to produce to and allow him to inspect of all material documents in the possession, B power or control of such person.'

Following this investigation, the registrar held that the properly belonged to the appellant's late father and that therefore he had rightly disposed it in his will in favour of the second respondent. In his appeal to the High Court from this decision C of the Registrar of Titles, the appellant challenged the right and power of the registrar to make such an investigation purportedly under s 105 of the Land Registration Ordinance. The High Court appears to have agreed with the D Registrar's exercise of such powers and dismissed the appeal on the basis that the Registrar's decision that the property belonged to the appellant's father was fully supported by the evidence before him.

However, we are satisfied that if the High Court judge on first appeal had not E assumed that the Registrar had such powers of investigation and had specifically addressed his mind to the above provisions of s 105, he would most certainly have found that that section gives no such powers to the Registrar of Titles. That F section as quoted above only empowers the Registrar of Titles to determine questions regarding whether his register should be corrected or an entry therein cancelled. Any other inquiry or investigation to be undertaken by him must be either expressly or impliedly authorised or required by the Ordinance or any rule made thereunder. The present proceedings did not involve a dispute over entries in the Land Register requiring the Registrar of Titles to determine whether any G registration or entry should or should not be made in the Land Register or that what is in the register should be corrected or cancelled. It involved the question whether the land in dispute registered in the appellant's name was the appellant's property or his late father's. The dispute therefore involved the ownership of H registered land. There is no provision both in the Land Registration Ordinance and in the rules which authorise or requires the Registrar of Titles to make investigations and determine such substantial issues as land ownership. The investigation and proceedings by the Registrar were therefore undertaken without jurisdiction, they were thus null and void. The purported appeal to the High I

A Court was equally null and void because the appeal was grounded on incompetent proceedings.

Accordingly, we allow the appeal, quash the proceedings both before the Registrar and those in the High Court. An order for costs in favour of the appellant against the second respondent is made both in this court and in the High Court. B

If either the appellant or the second respondent feels the other is threatening their interests in plot No 766 United Nations Road, Upanga area in Dar-es-Salaam, they can file an appropriate claim in court. C

D

[zRPz]EVA SALINGO, MT 6222421 PTE PETER MAGOTI AND MT 62218 PASCAL MGAWE v REPUBLIC 1995 TLR 220 (CA)

Court Court of Appeal - Mbeya

Judge Ramadhani JJA, Mfalila JJA and Lubuva JJA E

Criminal Appeal No 32 of 1995
August 23, 1995
(From the conviction and sentence of the High Court of Tanzania at Iringa, Mchome, J) F
Flynote
Evidence - Identification - Identified persons not strangers to the identifying person - circumstances favourable for unmistaken identity. G
Evidence - Identification - Identification parade - Appellants not identified because they were not in the parade - Whether failure of identification.
-Headnote
H The second appellant challenged his conviction for murder by the High Court on the ground that he was not identified as one of the killers. He charged that the witness who identified him was not a truthful witness and that she had failed to identify him during an identification parade in which he was present. On appeal:
Held:
(i) There was plausible evidence to show that the appellants were not I

strangers to the witness and that the circumstances at the time were A favourable for unmistaken identity;
(ii) The witness did not identify the appellants at the identification parade for the obvious reason that the appellants were not there and this cannot be taken as a failure on the part of the witness to identify them. B
Case Infomation
Appeal dismissed.
No case referred to.
Ndibalema for the appellant.
Mbise for the respondent. C
[zJDz]Judgment
Lubuva JA delivered the following considered judgment of the Court:
The second appellant, MT 62421 Pte Peter Magoti and the third appellant, MT 62218 Pte Paschal s/o Mgawe were charged in the first count with the murder of D the deceased, Said s/o Mlonganile. In the second count, the first appellant, Eva d/o Salingo was charged as an accessory after the fact. Both were convicted as charged. The second and third appellants were sentenced by the High Court sitting at Iringa (Mchome, J) to death. The first appellant was sentenced to five years imprisonment. E
Initially each of the above-named appellants had lodged an appeal against the conviction and sentence. However, we were notified at the hearing of the appeal that the third appellant died in prison on 1 April 1994. So the appeal is proceeded with only in so far as the first and second

appellants are concerned. In this appeal, we shall refer to the third appellant, the deceased, as the third accused. F

The tragic death of the deceased took place at Makambako on 15 February 1990. The first appellant, Eva d/o Salino owned a pombe shop where Ruti d/o Filangali (PW3) was employed in selling pombe. It would appear that the first appellant had a love relationship with both the deceased and the second appellant. It was the G prosecution case that on 15 February 1990 at about 8.00 pm the second appellant accompanied by the third accused came to the pombe shop for a drink. PW3 was then on duty at the pombe shop. At about 10.00 pm the deceased also came to the pombe shop where he sat at the counter with the first appellant. As it was closing time for the bar, the first and second appellants together with the deceased left the pombe shop and went towards the house of the first appellant. When PW3 H was taking the pressure lamp from the pombe shop to the house of the first appellant about I

A 30 paces from the pombe shop, she saw the second appellant and the third accused in hot exchange of words over the first appellant. Then the second appellant and the third accused held the deceased by the collar of his shirt outside the pombe shop. From the first appellant's house door, PW3 saw the second appellant and the third accused still beating the deceased with their boots. Then they dragged the deceased to a place she (PW3) did not know. B

PW3 did not see the second appellant, the third accused and the first appellant until the next morning at 5.00 am when the first appellant returned to her house and shortly left for Njombe. It was in the morning following the night of the incident C when the first appellant had left for Njombe that PW3 learnt of the deceased's death. She went to see the dead body lying by the roadside near the CCM office. PW3 identified the dead body as that of the deceased. Following the death of the deceased, a number of suspected people were arrested including Ruti d/o Filangali (PW3), Sauda Nyelenge (PW4), Ester Sanga (PW5) and the first D appellant. While in police lock-up, the first appellant threatened PW3 not to disclose to anybody about the fight that took place at the pombe shop where the deceased was beaten. If she (PW3) revealed, the first appellant threatened, PW3 E would be bewitched by the first appellant's mother. PW4 and PW5 who also heard this threat notified the police (PW6). Investigations were carried out and as a result, on 6 March 1990, the second appellant and the third accused were arrested and charged together with the first appellant.

F In her defence at the trial, the first appellant, Eva d/o Salingo virtually denied everything. She did not know the second appellant and the third accused. On the fateful night, she did not see the second appellant or the deceased at the pombe shop. She did not witness any fight taking place at her pombe shop that night. Though she knew the deceased she did not have love relationship with him. She G further stated that after she had returned the lamps from the pombe shop she went to bed. The following morning she left for Njombe to attend to a civil case. She denied threatening PW3.

H The second appellant raised the defence of an alibi. He claimed that he did not visit the pombe shop but remained at the barracks on the material night. He also maintained that he was

not identified at the identification parade in which he took part. This, he insisted, showed that he was not in any way involved in the killing of the deceased.

The learned Trial Judge after a careful analysis of the evidence came to the conclusion that PW3, PW4 and PW5 were honest and I

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LUBUVA JA

truthful witnesses. The judge further held that both the appellants had told the court A a pack of lies. Consequently, the second appellant was found guilty of murder and was sentenced to death. The first appellant was convicted as an accessory after the fact for which she was sentenced to five years' imprisonment.

Mr Ndibalema, learned counsel represented the appellants in this appeal. He B raised two points, namely that the learned Trial Judge erred in convicting the second appellant of murder because there was a fight. And that as regards the first appellant, the sentence of five years imprisonment was excessive.

From the outset, we wish to make it clear that it is our view that the main issue in C this appeal is the identification of the appellants. Arguing the appeal on behalf of the second appellant, Mr Ndibalema's brief submission was that as Stephen Kihanga (PW1), the investigating officer mentioned in his evidence of a fight and quarrel taking place at Msafiri pombe shop, it was possible that as a result of such D a quarrel and fight, the appellant was forced to retaliate against the deceased. In that case, Mr Ndibalema charged, the second appellant should have been convicted of manslaughter and not murder. In connection with the identification of E the second appellant, it is relevant to mention at this juncture that at the hearing of this appeal, in a rather unusual and dramatic manner, the second appellant who was present in court sought to conduct his appeal on his own. This was after Mr Ndibalema, learned counsel had finished his submission for both the appellants. We allowed him to address the court. The essence of his address to us was that F he was not involved in the murder of the deceased. This, he said, was so because he was not identified at the identification parade held at the barracks in which he took part. He discredited PW3 as an unreliable witness. He handed over to the court copies of the police statements by some of the witnesses for the prosecution to show how inconsistent they had been in identifying him (second appellant). G

On the issue of identification, the crucial evidence is that of Ruti Filangali (PW3). From the record it is evident that on the fateful night, she was on duty at Msefiri pombe shop from 8.00 pm to 10.00 pm, the closing hour. She was the employee H of the first appellant. PW3 in her evidence firmly stated to have seen the second appellant and the third accused at the pombe shop at the material time. That her employer, the first appellant, was also present there seated at the counter with the deceased. It is also in her evidence that both the appellants and the deceased were not new to her. She I

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LUBUVA JA

A had seen them on a number of occasions before at the pombe shop in company with the first appellant. There is therefore no reason why she should have mistaken the identity of these

people that day. With the aid of a pressure lamp ('karabai') which sufficiently provided light at the pombe shop, she was able to see the appellants and the deceased inside the pombe shop. Outside the B pombe shop, she again saw the second appellant and the third accused beating the deceased. The first appellant was also present. From the threshold of the door of the first appellant, PW3 saw the second appellant in the company of the third accused still beating and kicking the deceased who had fallen down a few paces away from the pombe shop. From there, PW3 also saw the deceased being C dragged by the roadside to a place she did not know. The following morning the dead body of the deceased was found lying by the roadside naked. The learned Trial Judge was convinced that PW3 identified the second appellant sufficiently. Addressing himself on this issue he stated: D

'The issue is whether PW3 identified those who were fighting. She says she knew both second and third accused persons and the deceased well before. They were the first accused's lovers. They came into the pombe early and drunk. At closing time their quarrel over E first accused started inside ... I am therefore convinced that PW3 identified those who beat up the deceased clearly. I find PW3 to be an honest and truthful girl ...'

And PW3 in her evidence inter alia had stated: F

'... I saw second and third accused beating the deceased with their boots. We went to Eva's house and stood at the door. We watched their beating the deceased. They said we would G never leave you this woman. We feared to come close. We watched through the door. They continued beating him. We were about 30 paces from the pombe shop at Eva's house. They dragged the deceased to I (sic) do not know where and Eva returned at 5.00 am.'

H On the basis of this evidence, the learned Trial Judge came to the conclusion that the second appellant and the third accused were the ones who beat the deceased and strangled him to death. This is supported by the post mortem examination report Exh PIV which indicates the cause of death as asphyxiation following strangulation. The acceptance of the evidence of PW3 was a question of fact which the learned Trial Judge was entitled to as correctly submitted by Mr I

Mbise, learned senior State attorney. It goes without saying that the judge was in a A better position to see the demeanour and assess the credibility of the witness (PW3) than an appellate court. We see no reason for faulting the Trial Judge on this point. The credibility of PW3 is strengthened even further by PW4 and PW5. In their evidence they support PW3 in her evidence that while in police lock-up the B first appellant threatened her (PW3) not to reveal to anybody about the fight that had taken place outside the pombe shop near the first appellant's house. The threat was that if she (PW3) did so, she (PW3) would be bewitched by the first appellant's mother. The threat was heard by PW4 and PW5 who were also in C police lock-up. It was PW4 and PW5 who informed the police about the threat and as a result, the investigation against the first appellant was intensified. This again, in our view, reinforces the fact that PW3 was a witness of truth as found by the Trial Judge.

With the evidence of PW3 accepted by the Trial Judge as credible, Mr D Ndibalema's claim that the death was a result of a fight between the deceased and the second appellant together with the third accused has no leg to stand on. It is clear from the evidence of PW3 that the deceased did not initiate the fight apart from pleading that the first appellant was, for a long time, his wife. Instead, the E evidence showed that all along, it was the second appellant and the third accused who were beating and kicking the deceased. The deceased was dragged away to the place where the next morning he was found dead. We agree with Mr Mbise's submission that this ground has no merit. F

Next we intend to deal with the identification parade. As regards the complaint raised by Mr Ndibalema, the learned advocate and the second appellant himself in his address in court on identification, we hardly need to say much on it. This is because, as observed, once the evidence of PW3 is accepted as truthful as found G by the trial court, there is no room for doubting the identification of the second and first appellants. We have already pointed out that there was plausible evidence to show that the appellants were not strangers to PW3 and that the circumstances at the time were favourable for unmistaken identity. We agree with Mr Mbise that the identification of the appellant was watertight. H

Then there is the issue raised by the second appellant that PW3 was unreliable since she could not identify him at an identification parade held at the barracks in Makambako in which he participated. On this again, we must say at once that the record is loud and clear. The evidence of PW3 does not support this claim. In her I

A evidence, she clearly states that on the day the identification parade was held at Idofi barracks, the second appellant and the third accused were not among those who took part in the parade. So she did not identify the second appellant and third accused in that parade for the obvious reason that they were not there. To our minds, this cannot be taken as a failure on the part of PW3 to identify the second B appellant, as he claimed at the hearing of the appeal. Even then, from the record, at the next earliest opportunity when PW3 saw the second appellant and the third accused at Msafiri pombe shop, without any delay, she alerted the police (PW6) who arrested them. This again, in our considered view, is a clear testimony C of PW3's firm and unmistaken identification of the second appellant and the third accused as the assailants of the deceased. The Trial Judge was entitled in his finding that PW3's identification of the second appellant was conclusive. The complaint on the identification of the appellants is to our minds groundless. D

As for the first appellant, like the case of the second appellant, the evidence of PW3 fully supported her conviction. We have sufficiently demonstrated that it being a question of credibility, she was properly convicted. Mr Ndibalema's E complaint against the sentence of five years' imprisonment as being excessive because she had stayed in remand prison for four years is, with respect, untenable. In any case, this was an aspect which was duly taken into account by the Trial Judge who rightly observed that the offence involved was a very serious one. She was centrally involved in enticing the deceased and the second appellant F into the

rivalry that resulted to the tragic death of the deceased for which death penalty has been imposed against the second appellant. We think that the sentence of five years' imprisonment is by any stretch of imagination not excessive in the circumstances of the case. We see no reason to interfere with the sentence. G

For these reasons we dismiss both appeals in their entirety. H

1995 TLR p227

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[zRPz]NURDIN AKASHA alias HABAB v REPUBLIC 1995 TLR 227 (CA)

Court Court of Appeal - Dar Es Salaam

Judge Kisanga JJA, Mfalila JJA and Lubuva JJA

Criminal Appeal No 221 of 1994 B

September 12, 1995

(From the decision of the High Court of Tanzania at Dar es Salaam, Mwaikasu, J) C

Flynote

Evidence - Relevance and admissibility - Evidence adduced in support of a charge which is dismissed for want of consent to prosecute - Whether relevant and admissible to support any other charge in the same information - Section 11 of the Evidence Act, 1967. D

Evidence - Circumstantial evidence - Knowledge of presence of drugs - Whether may be inferred from the circumstances obtaining.

Criminal law - Unlawful possession of Dangerous drugs - Drugs hidden with knowledge and approval of a person - Whether the person with knowledge and giving approval is in possession of those drugs. E

Evidence - Unlawful importation of Dangerous drugs - Drugs imported into Tanzania - Drugs found in expensive and expertly constructed and sealed devices fitted to disguise - Whether knowledge and approval of owner of trucks can be inferred. F

-Headnote

The appellant was charged in a District Court with three counts and was acquitted on all three the counts. Count one alleged unlawful possession of dangerous drugs, count two alleged unlawful importation of dangerous drugs and count three alleged corrupt transaction. Acquittal on counts one and two was grounded on insufficiency of evidence. The appellant was acquitted on count three for lack of requisite consent of the Director of Public Prosecutions. G

The Republic appealed to the High Court against acquittals on counts one and two only. The learned High Court judge found that there was sufficient circumstantial evidence to support a conviction on counts one and two. The learned judge also relied on the evidence adduced in respect of the count which was dismissed for want of the DPP's consent to support the conviction. H

On appeal to the Court of Appeal of Tanzania the appellant attached the decision of the first appellate court arguing that the court erred in finding that there was sufficient circumstantial evidence to ground a conviction because there was no evidence to prove that the appellant I
1995 TLR p228
KISANGA JA
A had knowledge of and/or approved the importation of the drugs into Tanzania. It was also argued that the learned judge was wrong to use the evidence in respect of the dismissed count on corrupt transaction to convict the appellant on the other counts.
Held:
B (i) Where, as in this case, the evidence was capable of supporting more than one count in the charge, such evidence could be used in support of any count in the information, notwithstanding that such evidence supported some count or counts which were found to be invalid or void;
C (ii) Though the count of corrupt transaction was dismissed, meaning in law that the appellant had not been tried at all on that count, the evidence adduced at the trial was admissible to support the charge on any of the remaining counts provided that such evidence was relevant;
(iii) The evidence relating to bribing the search party (i.e. corrupt transaction) was relevant to the charge of unlawful possession of dangerous drugs;
D (iv) Whether the drugs were hidden in the store by the appellant himself or by another person with the appellants' approval, the appellant was in possession of those drugs;
(v) On the evidence, the drugs found on the appellant's three motor vehicles were imported into the country by the appellant or with his knowledge and approval;
E (vi) The learned High Court judge was perfectly justified to find the appellant guilty of unlawful importation of the drugs found on the three motor vehicles and of unlawful possession of the said drugs plus those which were recovered from his house.
Case Infomation
F Appeal dismissed.
Case referred to:
(1) King v. R [1987] LRC (Crim) 153
G M R M Lamwai for the appellant.
M Sengwaji for the respondent.
[zJDz]Judgment
Kisanga, JA delivered the considered judgment of the court.
H The appellant, Nurdin Akasha alias Habab, was charged in the district court with three counts. Counts one and two alleged unlawful possession of dangerous drugs and unlawful importation of dangerous drugs, respectively, both being offences under the Dangerous Drugs Ordinance (Cap 95) and the Economic and Orga- I
1995 TLR p229
KISANGA JA

nised Crime Control Act, 1984 as amended by Act No 13 of 1988. The third count A alleged corrupt transaction, being an offence under the Prevention of Corruption Act, 1971 and the Economic and Organised Crime Control Act above cited. At the conclusion of the trial, the appellant was acquitted on all the counts. The acquittal on counts one and two was on grounds of insufficiency of evidence, while that on count three was for lack of consent by the Director of Public Prosecutions to B prosecute. However, dissatisfied with the acquittals, the Director of Public Prosecutions appealed to the High Court which convicted the appellant on counts one and two and sentenced him to concurrent prison terms of five and 10 years respectively. The Republic did not wish to pursue the appeal against the acquittal on the third count of corrupt transaction. It is against the convictions and C sentences imposed in respect of counts one and two that this appeal has been preferred. In this appeal the appellant is represented by Dr Lamwai, learned advocate, while Mr Sengwaji, learned principal State attorney appears for the respondent, Republic.

The facts of the case are fairly complex, but they may be summarised briefly as D follows: The appellant was a branch director of Akasha Transport Ltd, a transport company incorporated in Kenya with its head office at Mombasa and a branch duly registered and operating in Tanzania. The branch office in Tanzania was situated at a house in Msasani Village area in Dar-es-Salaam which house also served as E residence for the appellant, a Kenyan national and his family consisting of wife, children and mother. The Tanzania branch of which the appellant was the director had a fleet of 10 lorries, some of which had trailers. The fleet was used for transporting goods from Dar-es-Salaam to Zaire, Zambia and Malawi. The lorries had their minor repairs done in Dar-es-Salaam but major repairs were done at the company's head office in Mombasa. F During January and February 1993 the appellant sent the fleet to Mombasa for repairs. The trucks went via Nairobi where it was hoped they would be hired to transport goods but this was not done because the parties concerned could not G agree on the hiring rates. The trucks therefore travelled all the way with no cargo from Dar-es-Salaam to Nairobi and ultimately to Mombasa where they were repaired. The appellant visited Nairobi and Mombasa and made a follow up on the trucks. It took about two months to have the trucks repaired at Mombasa. After the H repairs the trucks were driven back to Dar-es-Salaam, arriving on different dates and again without carrying any visible cargo on them. The first contingent of these trucks arrived back on 2 July 1993, only two days after the appellant's return here from Mombasa, while the last batch arrived back on 19 July 1993. I

1995 TLR p230

KISANGA JA

A On 20 July 1993 the police, acting on information, went to search the appellant's office cum residence at Msasani village area where they seized 105 packets of methaqualone (mandrax) drugs. The drugs were stuffed in two motor vehicle tyres kept in a room used as a store on the appellant's premises. It was alleged that B during the search the appellant panicked and trembled, that he and his family pleaded with the search party to stop the search and that the appellant gave them Shs 918,200/= as a bribe.

As a result of the search and the discovery of the dangerous drugs, the appellant was arrested and kept in police custody. On the same day, following the C appellant's arrest, the appellant's mother ordered some motor vehicles of the appellant's fleet to be removed from their usual parking yard at Tirdo in Msasani area to the CCM parking lot in Temeke area. These were among the appellant's fleet of 10 lorries which had returned from Mombasa. Acting on information, the D police searched two of the trucks so transferred from Tirdo and a third one which had remained at Tirdo but which they ordered to be brought to them for search. From the three motor vehicles the police recovered over 2,100 packets of drugs similar to those seized from the appellant's premises; the said packets also contained mandrax drugs. The drugs were hidden in metal containers fitted inside E the fuel tanks of the lorries and their trailers such that they could not be detected upon ordinary inspection of the motor vehicles. The police had to cut open the fuel tanks using welding equipment in order to reach the said metal boxes inside containing the mandrax drugs. The amount of drugs recovered both from the F appellant's premises and from his motor vehicles came to a total of 1,147.591 kgs which according to the charge sheet is valued at well over US$8,994,000 or well over Shs 4,997,500,000/=. This amount was also said to be a record haulage of dangerous drugs ever intercepted at any one time in Tanzania. G

Following these investigations charges were preferred against the appellant, as shown above, who vehemently denied them. In his defence he explained that the mandrax drugs recovered from his premises were found in a store room which was under the charge of one Mohamed Abdarahaman, alias Kipara, a Kenyan H citizen. The appellant maintained that he had no knowledge of the dangerous drugs found in the said store room and, therefore, he could not be said to have been found in possession of them. He denied giving a bribe of Shs 918,200/= to the search party and explained that the search party had merely seized that amount in the course of their search of the premises. I

As regards the drugs found in his motor vehicles, his position was that the three A trucks from which the drugs were recovered were among the trucks which he had left undergoing repairs in Mombasa. As these vehicles arrived in Dar-es-Salaam about three weeks after he himself had left Mombasa, he was not in a position to say who meddled with the trucks and fitted them with those boxes containing the B contraband. In those circumstances therefore, the appellant contended that he could not be said to have been found in possession of the drugs in question, nor could he be held responsible for their importation into the country.

As stated before, at the conclusion of the trial the appellant was acquitted by the C district court on all the counts, but on appeal by the Director of Public Prosecutions the High Court found him guilty on the counts of unlawful possession and unlawful importation of dangerous drugs.

In this appeal Dr Lamwai filed and argued 14 grounds of appeal plus a further two D grounds filed in a supplementary memorandum of appeal. All of these grounds, however, essentially raise the issue of the insufficiency of the evidence in support of the charges. Counsel rightly pointed

out that the appellant's conviction was based solely on circumstantial evidence. However, he contended that such E evidence, as there was, did not pass the test for circumstantial evidence before conviction could be had on it. The evidence relied on to convict the appellant did not irresistibly point to the appellant's guilt. That evidence was not water tight; it left room or gaps such that a proper scrutiny of it leads to the view that the offences alleged were, or may have been, committed by person or persons other than the appellant. F

In finding the appellant guilty on the charge of unlawful possession of dangerous drugs, the High Court relied on the evidence that the appellant had access to the key to the store room where the drugs were hidden. For, he opened the door to G that store in order to allow the search party access to it; he used the key which he took from his wife to open that door. However, counsel argued that although the appellant had access to the store room in question there was no evidence to show that he knew that those drugs were in there. Dr Lamwai submitted that those drugs H may have been hidden there by one Mohamed Abdarahaman who, according to the appellant, was the person in charge of the store. Counsel emphasised, and indeed rightly so in our view, that proof of knowledge on the part of the appellant was essential. But since, in his view, there was no evidence that the appellant knew of the presence of I

A those drugs in the store room, then the charge of possession could not be sustained.

Mr Sengwaji for the respondent Republic conceded that there was no direct evidence to prove knowledge on the part of the appellant but that there was circumstantial evidence to prove such knowledge. Learned counsel submitted that B the appellant's assertion at the trial that the store room was under the charge of one Mohamed Abdarahaman was an afterthought because the two prosecution witnesses (PW2 and PW4) who were among the team conducting the search testified that they did not hear the appellant say that Mohamed Abdarahaman was the person in charge of the store room. The High Court judge accepted that C evidence but Dr Lamwai criticised him for so doing. This raises the issue of credibility of witnesses which we propose to deal with later on, but for the moment suffice it to say that we see no good reason why the Court should have preferred D the appellant's word to that of the two prosecution witnesses. If it were true that the store room was under the charge of Mohamed Abdarahaman and that the appellant was not aware of the drugs found therein, one would certainly expect the appellant to disclose this immediately the search party discovered the drugs. But once it is found that he made no such disclosure, then as submitted by Mr E Sengwaji, his subsequent disclosure was an afterthought, and the only reasonable inference to be drawn is that at least he was aware of the presence of those drugs in the store.

F This view is reinforced by the evidence that the appellant, his mother and wife pleaded with the search party to stop the search. The question is: If the appellant did not know of the presence of those drugs in the store why should he plead with the team to stop the search? Once again the only conclusion to be drawn is that he implored the team to stop because he knew that the search would lead to the discovery of the contraband. G

This view is further supported by the evidence that the appellant gave the search party a bribe of Shs 918,200/= in order to settle the matter there and then and not to proceed with it further. Dr Lamwai raised a number of arguments concerning this piece of evidence. First, he claimed that this was a mere fabrication by H prosecution witnesses in an attempt to falsely implicate the appellant with the offences charged. The police, he submitted, were interested in securing a conviction which would earn them financial reward and/or promotion. With due respect to the learned counsel we can find no substance in this submission. PW4 was a member of the search party who testified to the giving of the bribe by the appellant. He I

was a ward executive officer and a justice of the peace. It is not apparent how the A appellant's conviction could earn him any gain in terms of financial reward or promotion in his employment.

Counsel criticised the High Court judge for failing to hold that the prosecution evidence regarding the alleged bribe was contradictory and hence of no value, and that the learned judge resolved such contradiction by engaging in conjecture. PW4 B and PW11 testified that the bribe money was counted at the appellant's premises. On the other hand PW2 stated that the money was counted at the police station. In evaluating the evidence, the learned judge found that the money was counted both at the appellant's premises and at the police station. At first Dr Lamwai charged that PW2 was lying when he claimed that the money was C counted at the police station. Because, in his view, it was inconceivable that money given as a bribe should have been counted at the police station instead of at the appellant's premises where it was allegedly given as a bribe. He therefore D urged us to find that not only was PW2 telling lies but that the contradiction between the evidence of this witness and that of PW11 was so material as to render worthless the prosecution's allegation of a bribe. However, when it was pointed out to counsel that his client supported the evidence of PW2 that the E money was counted at the police station, counsel turned round and submitted that in those circumstances the High Court judge should have found that, consistent with his client's testimony, the money was counted only at the police station. That, F counsel contended, would render the prosecution case most improbable and, indeed, highly suspect because it was simply incredible for bribe money to be counted at the police station and not at the appellant's premises where it is alleged to have been given.

As stated earlier, two witnesses, PW4 and PW11 gave evidence that the bribe money was counted at the appellant's premises where it was given. PW4 was a G ward executive officer and a justice of the peace. As such he was a responsible officer and an independent witness who was not shown to have any apparent cause to tell lies. It is true that PW2 testified in his examination in chief that the money was counted at the police station. But he was not asked in H cross-examination whether or not the money was counted at the appellant's premises. Had he been so asked, his answer might well have been in the affirmative. For, like Dr Lamwai, we think that it would be incredible that money alleged to be a bribe should be counted at the

police station only and not at the place where it is said to have been given. In the circumstances, therefore, Dr Lamwai I
1995 TLR p234
KISANGA JA
A has not made out a case of any real contradiction in the prosecution evidence on this aspect. On the other hand the learned High Court judge was perfectly justified to find, as he did, that the bribe money was counted both at the appellant's premises, as testified to by PW4 and PW11, and also at the police station as testified by PW2 and supported by the appellant. It would appear that the counting B at the police station was done because the appellant had asked for it. For, in his evidence the appellant said:

'The money was taken and counted at the police station, that was what I wanted.' C

In other words, if the appellant had wanted to have the money counted at the police station, the police had to oblige, notwithstanding that there had been an earlier count at his residence.
D In yet another endeavour to attack the evidence relating to bribing the search party, Dr Lamwai strenuously contended that that piece of evidence ought to be expunged from the record because it had been adduced in support of the count of corrupt transaction which was dismissed for want of the Director of Public Prosecution's consent to prosecute. He severely criticised the High Court judge for E accepting and acting on that evidence to convict the appellant on the count of being in unlawful possession of dangerous drugs. Elaborating on this, counsel said that the evidence relating to bribery had been adduced in support of the count F of corruption. The appellant understood it so, and had that charge been valid, he would have prepared his defence accordingly if he so wished. But when at the end of the day that charge was dismissed for want of consent to prosecute, that meant that in law there had been no charge of corrupt transaction and, counsel G contended, the evidence purportedly adduced in support thereof cannot now be used to support the charge of unlawful possession of drugs. The reason for his argument is that the appellant was not made aware that the evidence relating to bribery was adduced also in support of the count of unlawful possession of drugs H so that he might have prepared himself accordingly to challenge it in the course of his defence on that count. In support of this submission counsel referred to the case of King v R (1).
We have given due consideration tot he submission by counsel, but we could not be persuaded. We are prepared to hold that when the count of corrupt transaction was dismissed for want of the Director of Public Prosecution's consent to prosecute, this meant I
1995 TLR p235
KISANGA JA
that in law the appellant had not been tried at all on that count. It is as if nothing had A happened. But the appellant's trial was otherwise valid in respect of the remaining two counts which were charged in the same information. The evidence adduced at such trial is admissible to support the charge on any of the remaining counts provided that such evidence is relevant. Section 11 of the Evidence Act provides that: B

'Facts necessary to explain or introduce a fact in issue or relevant fact, or which support or rebut an inference suggested by a fact in issue or relevant fact, or which establish the identity

of any thing or person whose identity is relevant, or fix the time or place at which any fact in issue or relevant fact happened, or which show the relation of parties by whom any such fact C was transacted, are relevant in so far as they are necessary for that purpose.'

The evidence relating to bribing the search party was also relevant to the charge of D unlawful possession. The prosecution was alleging that the appellant had knowledge of the drugs being present on his premises, and that is why he was doing all he could, including bribing the search party, to stop the search and to settle the matter there and then with them. Indeed such evidence would have been E properly adduced to support the charge of unlawful possession, even if the count of corrupt transaction had not been included, and it seems there could have been no valid ground of complaint. We can find no justification for the objection F based as it was, merely on the ground that that evidence supported a count which was dismissed for lack of consent to prosecute. We are of the view that where, as in this case, the evidence was capable of supporting more than one count in the charge, such evidence can be used in support of any count in the information, notwithstanding that such evidence supported some count or counts which were G found to be invalid or void.

The case of King v R cited by counsel is not of much assistance because as Mr Sengwaji pointed out, the facts there were distinguishable. In that case the appellant and a co-accused were jointly charged with murder. The whole trial had proceeded on the basis that the co-accused was being accused of killing the H deceased, while the appellant was being accused of being accessory before the fact to such killing. At the conclusion of the trial the co-accused was acquitted but the appellant was convicted of murder on the basis of being accessory before the fact to the killing of the deceased by I

A person or persons other than the co-accused. On appeal the conviction was set aside on the ground that the charge on which the conviction was based had introduced an element of surprise. All along the appellant had defended himself against the charge of murder in the context of being accessory before the fact where the alleged killer was an identified person i.e. his co-accused, while the B conviction was for murder on the basis of being accessory before the fact where the alleged killer or killers were unidentified. He was afforded no opportunity to prepare his defence in respect of the latter.

C In the instant case, however, the facts and circumstances are different. The appellant was arraigned on the charge of being in unlawful possession of dangerous drugs. Therefore he knew the case which he was going to meet at the trial. He had the opportunity to prepare his defence and indeed, he did defend D himself against the charge and in the light of evidence adduced in support of the count of being in unlawful possession of dangerous drugs. He was not in any way taken by surprise. The prosecution adduced evidence in relation to the charge as a whole covering the three counts set out in the information. In our view it would be impracticable, and indeed idle, to demand that when the prosecution adduces E evidence, it should specify which evidence relates to which count in the information. It seems plain to us that once the appellant knew that he was charged with unlawful possession of dangerous drugs, it must have been clear

to him that the evidence of bribery was intended to prove his knowledge of the drugs which F knowledge prompted him to give out the bribe in order to get the search party to stop investigations or stop taking further steps in the matter. In our view, therefore, the learned judge rightly accepted and acted on it in convicting the appellant on the count of unlawful possession of dangerous drugs. Unlike in King's case cited by G counsel nothing transpired in the present case which could be said to have introduced an element of surprise to the appellant.

There was also evidence that the appellant panicked and trembled during the search. Again Dr Lamwai sought to have this piece of evidence discounted as H being unreliable because it involved inconsistencies as to when exactly the appellant panicked or trembled. Our own view of the evidence is that the inconsistency involved here was only minor; it did not go to the root of the matter. PW2 and PW4 were consistent in saying that the appellant was shocked and that he panicked and trembled. The variation on whether the appellant displayed such conduct immediately upon the search I

party entering on the appellant's premises or on entering the store room where the A drugs were kept is, in our view, of no consequence.

On the evidence therefore, the High Court judge was entitled to find that in the course of searching the appellant's premises, the appellant was shocked, that he panicked and trembled and that he pleaded with the search party and bribed them B in an attempt to get them to stop the investigation or to have the matter settled there and then. Mr Sengwaji submitted that such conduct clearly indicates that the appellant had knowledge of the drugs and that there could be no other explanation for it. In response thereto, however, Dr Lamwai contended that such conduct, C although suggestive of crime, was not conclusive of guilt. In this connection learned counsel referred to a passage in Sakar On Evidence (13th ed) at 86 which reads:

'Different persons are differently constituted and some accused even though innocent D deliberately abscond rather than face the ordeal of a criminal trial and some other innocent accused do equally foolish things as make a false admission of guilt or pay off the amount said to have been stolen or embezzled. Such subsequent conduct dispenses the guilt, the burden of which is on the prosecution.' E

Counsel submitted that the appellant may have conducted himself the way he did for a variety of reasons, such as, the mere scare of the police searching his premises, or fear in connection with some misconduct connected with his business as a transporter but unrelated to the offences in question. In any event, F counsel went on, the appellant should not be convicted on the weakness of the defence but on the strength of the prosecution case.

We have carefully considered this argument, but we think it lacks merit. PW4 in his evidence said, inter alia, that: G

'... the accused gave the bribe of Shs 918,200/=. The accused said this is because of hunger. I will destroy the drugs. I will not repeat.'

This statement cannot by any stretch of imagination be said to be consistent with H the appellant being unaware of the drugs found in his house. He gave the explanation of 'hunger' as

the reason for his engaging in the drug business and promised to destroy the drugs found in his possession and to stop dealing in drugs in the future. He placed himself right at the centre of things, so to speak. If he had no knowledge of the drugs he could not have associated himself with them so closely as he did. I

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A Dr Lamwai repeatedly submitted that the drugs found in the appellant's store room were hidden there by Mohamed Abdarahaman who, according to the appellant, was the person in charge of the store. There was evidence that the said Mohamed Abdarahaman, a Kenyan, was staying in Mombasa, that he never lived in that room and he was last seen in Dar-es-Salaam two days before the store B was searched and that during police investigations following the appellant's arrest he could not be traced. Our view is that if the drugs were introduced into the store by the said Mohamed Abdarahaman, this must have been with the knowledge and approval of the appellant. It is highly unlikely that Mohamed Abdarahaman would C have risked leaving such a valuable commodity in the store at a time when he had no control over it as he spent his nights elsewhere and stayed away for some days. Whether the drugs were hidden in the store by the appellant himself or by the said Mohamed Abdarahaman with the appellant's knowledge and approval, the D appellant was in possession of those drugs and the learned High Court judge rightly so found.

The foregoing analysis and conclusions related to the dangerous drugs recovered from the appellant's premises. As regards the drugs found hidden in the three of E his fleet of lorries, it was common ground at the hearing of this appeal that the drugs were imported from Kenya into this country. The only question is who did the importation. The High Court found that it was the appellant, but Dr Lamwai disagreed sharply.

F According to the evidence the three trucks on which the drugs were found were among the motor vehicles which the appellant had left behind in Mombasa undergoing repairs. Those motor vehicles arrived in Dar-es-Salaam a little over a fortnight after the appellant himself had done so. Dr Lamwai therefore contended G that the drugs must have been fitted on the motor vehicles after the appellant had left for Dar-es-Salaam, in which case he would not know anything about them. In his view a number of people might be concerned with the fitting of those drugs on the motor vehicles. There was evidence that the appellant and his father were involved in arranging for the repairs of the lorries at Mombasa. Dr Lamwai, H therefore, took the view that the drugs might have been fitted on the trucks by the appellant's father after the appellant's departure for Dar-es-Salaam. Again there was evidence that on the very day the appellant was arrested following the discovery of the drugs at his premises, his mother ordered the removal of two motor vehicles from Tirdo where they used to be parked, to the CCM parking I

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lot in Temeke. Subsequently mandrax drugs were recovered from these vehicles. A Learned counsel submitted that the importation of those drugs into the country must have been an

arrangement between the appellant's father in Mombasa and the appellant's mother in Dar-es-Salaam, but without the appellant's knowledge. In other words the appellant's father decided to conduct the illegal drug business B behind the back of their son while the son continued to manage the legitimate business of Akasha Transport. We are not at all impressed by this. There was overwhelming evidence showing that the appellant played an executive role in the management of the Tanzania branch of Akasha Transport. It is he who ordered the C movement of the fleet of lorries from Dar-es-Salaam to Nairobi and thence to Mombasa. At Nairobi the purchase of spare parts for the repair of the motor vehicles to Mombasa for major repairs, all had to await his arrival even though his father was in Nairobi at the time. Likewise after the fleet arrived in Mombasa the D decision as to which vehicles should be taken to which garages for what repairs had to await his arrival from Nairobi. It is the appellant who at all times had the control over the movement of the motor vehicles and what cargo they carried. In those circumstances it is unthinkable that the appellant's father would take only the E appellant's mother in confidence and with her engaged in drug trafficking using the company's motor vehicles without the knowledge of the appellant who had the control of those vehicles. Furthermore, Dr Lamwai when advancing mitigation on the appellant's behalf before the High Court, disclosed that the appellant's father F and mother were divorced. It is inconceivable that the appellant's father would confide in his estranged wife knowledge of such a valuable thing or transaction to the exclusion of his son who was also a senior business partner and co-director.

Equally unimpressive is Dr Lamwai's contention that the drugs might have been G fitted on the trucks by the drivers of those vehicles. First of all the whole exercise involved fitting a new fuel tank at least on one of the motor vehicles. There was evidence, for instance, that motor vehicle KTU 052 with trailer No ZA 8202 was fitted with a new additional fuel tank which was found to contain mandrax drugs. The tank was easily seen by anyone looking at the vehicle. A driver would not dare H fit such an extra tank because the appellant would easily see it and demand explanation for it. Not only that. The evidence shows that the whole operation was very skillfully done. Indeed the trial magistrate who had the advantage of viewing the exhibits said: I

A 'I have seen all the three lorries and the places where the tanks had been fixed. I have also seen the tanks themselves. I have no doubt in my mind that a lot of labour and time was required in that exercise. I am also satisfied that a lot of expertise and sophisticated machinery were needed in the job.'

B And the learned High Court judge found that:

'... the tanks in which the drugs were found on the three lorries had been expertly constructed and sealed as to make it very difficult even to the police to have them removed and opened when they discovered such drugs. That in my view could not be the type of work that could have been undertaken by the drivers and turn boys of their own.' C

We entirely agree with the courts below and add that such a job was costly such that the drivers could not afford to pay for it. There was evidence that so soon after D the appellant's arrest the drivers of these trucks, who were all Kenyans, said that they were leaving because there was

nobody to give them subsistence. If they had problems with finding mere subsistence, it would be impossible for them to finance an expensive operation such as the one in this case.

E Thus having regard to Dr Lamwai's submission, our own view is that if the appellant's father or mother or the drivers had a hand at all in the importation of the drugs, they must have done so with the knowledge and approval of the appellant. Of course, apart from mere speculation, there is no evidence that the appellant's father or the drivers did anything to import or facilitate the importation of the drugs. F As for the appellant's mother, however, there was the evidence that on the same day the appellant was arrested following the recovery of the mandrax drugs at his premises, she ordered the removal from Tirdo to Temeke of the trucks which had on board huge quantities of the same drugs. That shows that she had knowledge G of the drugs. It is therefore possible that she participated in the commission of the offence or offences charged, but that does not absolve the appellant from liability.

H On the evidence we are satisfied that the drugs found on the appellant's three motor vehicles were imported into the country by the appellant or with his knowledge and approval. Therefore the learned High Court judge was perfectly justified to find the appellant guilty of unlawful importation of the drugs found on the three motor vehicles, and of unlawful possession of the said drugs plus those which were recovered from his house. In the result the appeal fails and we dismiss it accordingly. I

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[zRPz]EMMANUEL KIBONA AND OTHERS v REPUBLIC 1995 TLR 241 (HC)

Court High Court of Tanzania - Mbeya
Judge Mchome J

Criminal Appeals No 3, 4 and 5 of 1995 B
October 10, 1995
Flynote
Criminal Practice and Procedure - Sentence - Sentencing Juveniles - Ascertainment of age of juveniles. C
-Headnote
After being convicted of robbery with violence the appellants were sentenced by the trial court under the Minimum Sentences Act, 1972. On appeal they argued that they were juveniles and as such ought not to have been sentenced under the Minimum Sentences Act, 1972. The appeal court considered the propriety of the D sentence in light of the age of the appellants. A medical report had said that all the appellants were adults. The appellant's challenged the assessment of their ages by the medical doctor. Their parents submitted, inter alia, baptismal certificates to enable the court assess the ages of the appellants. E
Held:

(i) Evidence of a parent is better than that of a medical doctor as regards that parent's child's age;

(ii) Where age cannot be assessed accurately the benefit of doubt must be given to the accused;

(iii) In this case the appellants are given the benefit of doubt. F

Case Infomation

Appeal allowed in part.

Cases referred to:

(1) Yusufu Kabonga v. R [1968] HCD No 188

(2) Sangu Saba & Anor v. R [1971] HCD No 385 G

(3) Francis Mtunguja v. R [1970] HCD No 181

[zJDz]Judgment

Mchome, J:

The three appellants, Emmanuel Kibona, Lugano Stephen and Jane Kapulu, were H jointly charged with two counts, namely, conspiracy to commit an offence contrary to s 384 of the Penal Code, and robbery with violence contrary to ss 285 and 286 of the Penal Code. The count concerns all the three appellants while the second one is against the first and second appellants, Emmanuel and Stephen, respectively, only.

They were all found guilty by the Mbeya District Court (P A I

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MCHOME J

A Lyimo, RM) on both counts and sentenced to 15 years imprisonment terms on each count. The sentences were ordered to run concurrently.

Being aggrieved they have now appealed here against both convictions and sentences.

B The evidence for the prosecution at the trial was that the complainant, Leina Jiwa, had employed the third appellant, Jane Kapulu, as a house servant. Jane knew the inside of the complainant's house very well. Besides that the third appellant had a boyfriend going by the name of Clemence. She informed her C boyfriend and the other appellants that in the complainant's house was kept a lot of money. So the trio arranged to go and steal that money.

It was on 20 November 1994 at midday when the first and second appellants knocked at the complainant's door. She opened the door for them. They entered leaving Clemence outside. The appellants threatened to kill the complainant with a knife unless she showed them where the money was kept. They cut her hand D partially with the knife. She showed them the money, Shs 2,100,000/= wrapped in a paper bag. They took it but not before the complainant had made an alarm.

E Neighbours came to her aid. One of them was PW2, Godfrey. He entered the house and saw the first two appellants inside. They threatened him with the knife and managed to escape with the bag of money. They jumped the fence and went to the streets. An alarm was made and the appellants were chased. The second F appellant was the first to be arrested. The first appellant ran harder, but eventually was arrested by the mob that has joined in the chase. Before being

arrested he threw the bag of money away. The mob picked it but the police retrieved it before they had done much damage to the money.

G When the bag was opened at the police station it was found to have Shs 700,000/= instead of Shs 2,100,000/=.

The appellants were jointly charged. But Clemence has not been apprehended up to now.

Before the police the first and third appellants confessed to have conspired to rob. H

In their defence the first and second appellants alleged they were just passersby when they were arrested and beaten up by the mob at Meta Secondary School grounds. The third appellant after denying being involved at last admitted in court to have arranged the robbery with her boyfriend, Clemence, and the other appellants.

A lot of people saw the appellants, from the complainants house I

to the place where they were arrested. The appellants never disappeared from the A sight of the chasers holding the bag of money until they threw it away to be picked by the mob and the police.

The difference between the amount alleged to have been stolen and that recovered when the bag was picked does not help the appellants either. Some B could have been stolen when the bag was thrown away by the first appellant or the complainant could have been mistaken on the figure. There is no evidence that when she was threatened to surrender the money to the knife-wielding thieves she counted it first.

But with this kind of evidence before it no reasonable tribunal would have found the C appellants not guilty. So their appeals against conviction lack in merit and are hereby dismissed.

Now we come to the appeals against sentences.

The appellants were convicted on the first count and sentenced to fifteen years jail each. This sentence is illegal as the maximum sentence provided under s 384 of D the Penal Code for the offence of conspiracy is seven years' imprisonment.

All three appellants have claimed to be children and young persons and so wrongly sentenced on the second count under the Minimum Sentence Act, 1972. In E sentencing them the learned Trial Resident Magistrate ordered the appellants to be medically examined as to their ages first. The medical report for the first appellant states that he is thirty years old, the second appellant twenty-three years old and the third one eighteen years old. These medical reports have been challenged on appeal and an application for additional evidence as to the appellants' age was made. Despite vehement opposition from the learned State Attorney, I granted this F application. This is because during the time of stating their mitigating factors the appellants stated their ages to be seventeen years, fifteen years and fifteen years respectively. Then the learned Trial Magistrate ordered that the appellants be G examined as to their age. Medical reports were tendered which stated that the appellants' ages were estimated to be about thirty years, twenty-three years and eighteen years respectively. The doctor was not called to state how he arrived at these conclusions, nor were the appellants given the chance to challenge those

estimates. The learned Trial Magistrate took these estimates to be correct. In Yusufu Kabonga v R (1), Biron, J (as he then was) held: H

'However high the medical officer's qualifications and the extent of his experience, I am very far from persuaded that a doctor ... could give a definite assessment in respect of age ... with that degree of I

A certainty required in a criminal law. Accused to be treated as a minor.'

And in Sangu Saba & Anor v R (2) where even x-rays were used to examine the accused as to his age, the East African Court of Appeal held: B

'It is so well known as to be within the judicial knowledge of the court that even with the aid of X-rays, age cannot be assessed exactly.'

C And in Francis Mtunguja v R (3) George, CJ (as he then was) held that the High Court may call for additional evidence on appeal to elucidate a matter left vague in the trial court. It is desirable that s 322 of the Criminal Procedure Code be broadly interpreted. He continued: D

'I thought such additional evidence necessary because although it is possible in my view, on the facts to support the inference drawn by the trial magistrate, it appears to me to be undesirable to decide an important issue as to guilt or innocence on a serious charge on an inference when there could be available records which could help to establish the matter on way or the other ... A first appeal from the subordinate court is in law an appeal by way of E re-hearing. ... If the emphasis is to be on the interest of justice ... there should be little reluctance at the hearing of the first appeal to have as thorough an investigation of the factual situation as may be possible before arriving at its decision should this appear necessary.' F

In this appeal the appellants' parents alleged to have some evidence regarding the appellants' ages. Evidence of a parent is even better that that of a medical doctor as regards that parent's child's age. And additional evidence is as vital in G sentencing as in the trial itself. So I allowed the appellants to bring additional evidence.

For the first appellant, Emmanuel Kibona, his mother, Tukumbukege Kayange, tendered a birth certificate and a baptism certificate. She does not know the year he was born and just says he was born three days after Christmas. The baptism H certificate shows the appellant was born on 23 December 1977. So does the birth certificate. The birth certificate and the affidavit regarding birth were issued after the appellant was convicted with this offence. But the baptism certificate is dated 25 December 1980.

The certificates for the second appellant tendered by his father are baptism certificate, birth certificate and primary school leaving cer- I

tificate. They all state that he was born on 26 December 1979. For the third A appellant was tendered a certificate for birth only issued on 22 March 1995 after she was sentenced in this case. It states that she was born on 20 November 1980.

Save for the baptism certificates the appellants' other certificates were prepared after they were convicted in this case. This casts doubts on their genuineness. But B I find no reason to doubt the genuineness of the baptism certificates. Also by appearance the second and third appellants look younger than what the medical certificates state. They look sixteen or below. So their parent's evidence could be the truth though prepared in suspicious ways after they were convicted, The burden of proof is not that heavy on the defence. The 1st appellant, Emmanuel C Kibona, despite the baptism certificate and the birth certificate, appears to be in is early twenties, not seventeen or thirty. But in the case of Sangu Saba & Another v R (2) cited above, the Court of Appeal for Eastern Africa held that age cannot be assessed accurately the benefit of doubt must be given to the accused. D

In this case therefore I give the appellants the benefit of doubt and hold that the first one was aged seventeen in 1994, the second one 16 and the third one fifteen years old.

Under s 2 of the Minimum Sentences Act 1972 the provisions of the act shall not E apply to a juvenile, and under s 3 of the same act, 'juvenile' means any person under the apparent age of eighteen years.

So the appellants were juveniles when they were sentenced last year. Their sentences are therefore set aside and in their place substituted the following sentences: F

1st count

(a) The first appellant is sentenced to two years imprisonment.

(b) The second and third appellants who are below sixteen have their sentences reduced such as will result to their immediate release from prison. G

2nd count

(a) The first appellant is sentenced to five years imprisonment.

(b) The second and third appellants' sentences are reduced so as to result in their immediate release from prison. Sentences for the first appellant to run concurrently. H

In sum therefore the appeals against convictions are dismissed entirely and those against sentence are partly allowed as shown above. I

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[zRPz]NURDIN AKASHA v REPUBLIC (II) 1995 TLR 246 (CA)

Court Court of Appeal - Dar Es Salaam

Judge Kisanga JJA, Mfalila JJA and Lubuva JJA

B Criminal Appeal No 190 of 1994

October 23, 1995

(From the decision of the High Court of Tanzania at Dar es Salaam, Chua, J) C

Flynote

Administrative law - Prerogative orders - Order of Preventive detention made and effected after an accused's acquittal by Court - Whether such detention legal.

-Headnote

D This was an appeal against the decision of the High Court which upheld the legality of the appellant's detention under the Preventive Detention Act and dismissed an application for habeas corpus. The legality of the detention was challenged in the High Court as it was effected immediately after the appellant had been acquitted by the Court. It was argued that the Government, by ordering the E detention of the appellant, was pursuing criminal and administrative measures at the same time.

Held:

(i) Since at the time of detaining the appellant court proceedings had terminated, there was no interference with court decisions;

F (ii) The appellant was properly detained.

Case Infomation

Appeal dismissed.

Cases referred to:

(1) DPP v. Mehboob Akber Haji and Others CA Crim Appeal No 28 of 1992. (unreported) G

Dr Lamwai for the appellant.

Sengwaji for the respondent.

[zJDz]Judgment

Mfalila, JA: delivered the following considered judgment of the Court: H

In the Resident Magistrate's Court at Dar es Salaam, the appellant Nurdin Akasha was charged with three counts under the Economic and Organized Crime Control Act 1984. The charges involved unlawful importation and possession of dangerous drugs and corrupt transactions. The drugs involved were 1,096,719 kilograms of I

Methaqualone alias Mandrax valued at Shs 4,997,500,000/=. The trial Resident A Magistrate found and held that the charges in all three counts had not been proved beyond reasonable doubt and acquitted the appellant with an order that he be released from remand custody. But he was arrested soon after leaving the court premises and taken to the central police station. He was served with a detention B order. Since then he has been detained under the Preventative Detention Act. Following this detention, a habeas corpus application was lodged in the High Court seeking the following directions and orders:

(1) That Nurdin Akasha having been acquitted by the Dar es Salaam C Resident Magistrate's Court (Matui, PRM) on 20/5/94, the immediate detention of the said Nurdin Akasha on the said 20/5/94 infringed his rights as a freeman and this infringed the constitution of the United Republic of Tanzania. D

(2) That the said illegality be remedied by this honourable Court nullifying the detention of Nurdin Akasha.

(3) That Nurdin Akasha be released immediately.

These were the three orders and directions contained and sought in the E application filed on behalf of the appellant, and this application was supported by the affidavit of one Shamsa

Abdulrahman Niran who described herself as the appellant's aunt. After the respondent republic had filed their counter affidavit and a reply thereto had been filed by the appellant, the hearing of the application was set down. But what is clear from the record of proceedings is that the nature of the F application took a completely different turn. Instead of proceeding on the basis of the application before it, the Court was misled into considering the constitutionality of the act under which the appellant was detained. After hearing arguments from G both sides, the learned judge held that although the Preventive Detention Act has a number of shortcomings, i.e. a detainee is not given the right to be heard, still it had sufficient safeguards to pass the test of constitutionality. Accordingly he held that the Act was constitutional and that therefore the appellant was validly detained under it. The appellant lodged this appeal complaining in the substantive ground H that the learned High Court Judge erred in law in holding that the Preventive Detention Act had sufficient safeguards and as such was constitutional.

During the hearing of this appeal, Dr Lamwai, learned counsel who appeared for the appellant, submitted forcefully on the consti- I

A tutionality of the Preventive Detention Act. He argued that the Act in unconstitutional because it lacked basic safeguards before the powers under it are invoked and that if the detainee has a right to make any representations, these are limited to the formalities and procedures not the reasons for such detention. Mr Sengwaji, learned Principal State Attorney, argued to the contrary on the behalf of the Republic. B

In our view these arguments are neither here nor there because as we have indicated the High Court was misled and went astray. In the result it went off course and decided an issue which was not formally before it, leaving the formal prayers in the application unanswered. C

As already indicated, the application before the High Court was for the issuance of directions in the nature of habeas corpus that:

D (1) Nurdin Akasha having been acquitted by the Dar es Salaam Resident Magistrate's Court (Matui, PRM) on 20/5/94, the immediate detention of the said Nurdin Akasha on the said 20/5/94 infringed his rights as a freeman and this infringed the constitution of the United Republic of Tanzania.

E (2) The said illegality be remedied by this honourable Court nullifying the detention of Nurdin Akasha.

(3) Nurdin Akasha be released immediately.

F In all the three prayers asked for, none of them challenge the constitutionality of the Act under which the appellant was detained. They challenge the legality of his detention because such detention was ordered after the appellant was acquitted by a court of law and that therefore such detention infringed his rights as a freeman, the rights which are protected by the constitution. This was the basis of G the application before the Court and that therefore because the detention is illegal for the aforementioned reasons, the Court was asked to remedy the situation by nullifying the detention order and ordering the immediate release of the appellant. The constitutionality of the Act is raised for the first time in the reply to the counter

affidavit. This part of the reply therefore was just hanging in the air for it H was not supporting anything in the original application. In the course of his submission in the High Court, Counsel for the appellant asked for the following prayers which played a major role in misleading the Court:

(a) That the Court can under s 390(1)(b) of the CPA make a I

finding that the applicant is being illegally and improperly detained and A order that he be set at liberty immediately.

(b) That whoever has the custody of the applicant be ordered to produce him in Court.

(c) That the Court declare the Preventive Detention Act unconstitutional and void to be struck off the statute book. B

It is clear then that while prayers in (a) and (b) above are contained in and supported by the application before the Court, the prayer in (c) seeking to have the Preventive Detention Act declared unconstitutional is not part of the original application and the affidavit supporting it. Indeed, Dr Lamwai's reply in Court confirms this when he submitted: C

'However we concede that there was a preventive detention order signed on 20/5/94. We concede that our appellant was detained, what we are not conceding is the legality of the President to use is powers under Section 2 of the Preventive Detention Act to counteract the decision of the Court.' D

This was a correct statement of the issue before the Court based on the application before it. As a matter of fact the question of the constitutionality of the E Act being a new issue was raised by Mr Naali, counsel for the respondent Republic. In his submissions in the High Court, he said:

'The chamber application and the affidavit in support which were drawn up by Kashumbugu F advocate and the counter affidavit drawn up by myself have covered all matters regarding the legality of the detention under the Preventive Detention Act that:

(1) It amounts to an infringement of the basic rights of the applicant

(2) That the executive interferes with the judiciary. G

These are the matters at issue. In reply to the counter affidavit drawn up by Dr Lamwai, there is raised a fresh issue and that is the issue of constitutionality. This amounted to taking the Court by surprise and he is estopped from bringing matters which were not in the affidavit. The Court should not consider the question of constitutionality of the Preventive Detention Act. Dr H Lamwai is estopped from bringing the matter. This is because it was not in the original affidavit of the applicant.'

In answer to this objection, Dr Lamwai told the Court that in his submission the references to the constitution in the application to I

A the effect that the applicant's detention infringed the constitution of the United Republic raised the issue of the constitutionality of the Preventive Detention Act under which the

detention was ordered. The learned judge did not make any ruling on this but in our view Dr Lamwai's reply had no validity. In the application, it is B stated that the detention of Nurdin Akasha on 20 May 1994 infringed his rights as a freeman and this (i.e. the infringement of rights) infringed or was in violation of the C constitution of the United Republic of Tanzania. The Court was therefore asked to quash this detention which infringed the constitutional rights of the appellant and order his immediate release. The Court was being asked to order the immediate release of the appellant not because the Act under which he was detained is unconstitutional, but because the detention was ordered following his acquittal by a court of law and that this violated his basic rights to personal freedom under the D constitution. In other words what was being challenged by the application was not the constitutionality of the Act used to detain the appellant, but the legality of his detention following an acquittal by a court of law. It is therefore our task to bring the whole case back on track and determine the appeal solely on the basis of the application before the High Court - namely that the application in the High Court was in the nature of a habeas corpus. E

In support of his argument that the Preventive Detention Act was wrongly used after a court order acquitting the appellant, Counsel cited the decision of this Court in DPP v Mehboob Akber Haji and Others (1) in which this Court stated that the F Preventive Detention Act was not meant to supplement the Criminal Law and that the two should not be used in tandem as it were. In Dr Lamwai's view, this is what the Government did in this case, they were pursuing criminal and administrative measures at the same time. Mr Sengwaji countered this argument by G distinguishing the two cases. In his submission, the Mehboob case is different from the present case in that in the Mehboob case the Government invoked administrative measures to detain the accused while their case was pending in court. In the present case the Court proceedings had been terminated by the acquittal of the accused. H

We are satisfied that this distinction is valid. In the Mehboob case the decision to detain the accused was taken following the court order releasing them on bail. Thus the accused were detained while their case was pending in court. The detention order was issued to counteract the court order releasing them on bail. In the present case the accused was arrested and detained after his case was termi- I

nated in his favour. There was thus no case pending against him when he was A picked up by the police as he left the court house. It cannot therefore be said that parallel methods were being used simultaneously, so as to bring this case within the principles enunciated in the Mehboob case. Considering what the appellant's B mother had done, i.e. escaping from hospital while under guard, and the dubious circumstances in which the appellants was acquitted, there were genuine fears that the appellant would escape before the state filed the appeal against his acquittal.

In the circumstances we are satisfied that the appellant was properly detained and this fact did not conflict with the Court orders. There was no interference with court C decisions as the courts had at that stage terminated the proceedings against the appellant. This is the basis on

which the High Court should have made its decision in upholding the appellant's detention rather than on the constitutionality of the Act which was not before it. It was brought in through the back door. Whether D or not the Preventive Detention Act is constitutional will have to await a relevant occasion.

Accordingly we dismiss the appeal in its entirety. E

1995 TLR p251

F

[zRPz]NATIONAL HOUSING CORPORATION v TANZANIA SHOE COMPANY AND OTHERS 1995 TLR 251 (CA)

Court Court of Appeal - Dar Es Salaam

Judge Kisanga JJA, Ramadhani JJA and Mfalila JJA G

Civil appeal No 48 of 1994

October 26, 1995

(From the judgment and decree of the High Court of Tanzania at Dodoma, Mwalusanya, J) H

Flynote

Constitutional interpretation - Parties to proceedings involving interpretation of Constitutional provisions enshrining basic freedom, rights and duties - Attorney General a necessary party - Section 17A(2) of the Law Reform (Fatal Accidents and Miscellaneous I

1995 TLR p 252

KISANGA JA

A Provisions) Ordinance, Cap 360, as amended by Act No 27 of 1991.

Constitutional interpretation - Parties to proceedings involving interpretation of Constitutional provisions for basic freedoms, rights and duties, and competence of the court - Court proceeding with hearing without summoning Attorney General to appeal as a party - Consequences thereof. B

-Headnote

The High Court entertained proceedings involving the interpretation of the Constitutional provisions enshrining basic rights and freedoms without summoning the Attorney General to appear as a party in the proceedings. On appeal the Court C of Appeal considered whether or not the High Court was competent to proceed with the hearing without the Attorney General.

Held:

D (i) The Attorney General was not summoned as a party to appear for the hearing of the proceedings and the failure to so summon the Attorney General by the trial court contravened the provisions of s 17A(2) of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance, Cap 360 as amended by Act No 27 of 1991;

E (ii) Since the trial commenced and continued in the absence of a necessary party the Court proceeded without authority and that constituted a major defect which went to the root of the trial thus rendering the proceedings null and void.

Case Infomation
Appeal allowed.
F Case referred to:
(1) Laura Alfan Salum and 9 Others v. Minister for Land Housing and Urban Development and National Housing Corporation. Civil Appeal No 15 of [1994] TLR 237
G N Rweyemamu, ED Kisusi and N Mselem for the appellant.
D C Mbezi, for the respondent.
E Kifunda and S B Salula for the Attorney General.
[zJDz]Judgment
Kisanga, JA: delivered the following considered judgment of the Court:
H This appeal arises from the decision of the High Court (Mwalusanya, J) granting orders of certiorari and prohibition against the appellant, The National Housing Corporation (NHC), for having effected rent increases to its tenants to the tune of 800% per annum. Before the matter proceeded to hearing the Trial Judge, following representations from the Bar, ruled that in terms of s 17A(2) of the I
1995 TLR p 253
KISANGA JA
Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance, Cap 360, A as amended by Act No 27 of 1991, the Attorney-General be served to appear. The case was then adjourned a number of times between 23 July 1993 and 16 June 1994 because the Attorney-General could not be served. The record shows that when the case came up for hearing on 16 June 1994 Mr Mussa, the senior state-attorney, Dodoma, communicated information to the Court: B

Mussa - Senior State Attorney: We do not like to be heard. Counsel for the defendants will take care of our interests. C

Following receipt of such information the Court proceeded to hear the case at the conclusion of which it granted orders of certiorari and prohibition as indicated above.
In this appeal the appellant corporation is represented by a team of three D advocates, namely, Mr N Rweyemamu, Mr E D Kisusi and Mr N Mselem. The respondents are represented by Mr D C Mbezi, learned advocate, while the Attorney General was at first represented by Mr E Kifunda and later by Mr S B Salula, learned State Attorney and Senior State Attorney respectively. E
On behalf of the appellant, a memorandum of appeal was filed containing a total of 13 grounds of appeal. But at the commencement of the hearing we directed counsel for both sides to address us first on grounds three and four only which raise the issue of jurisdiction or competence of the trial Court, it being apparent F that should those grounds succeed, that was sufficient to dispose of the entire appeal, and it would serve no practical purposes to argue the rest of the grounds. The two grounds allege as follows:

3. That the learned Trial Judge erred in law in holding that the G Attorney-General was duly served without considering the question whether the Attorney-General, or his representative designated by him for that purpose, was summoned to appear as a party to the proceedings in the trial Court.

4. That the learned Trial Judge erred in law in commencing and continuing H the proceedings in the trial Court without summoning the Attorney-General, or his representative designated by him, for that purpose to appear as a party to the proceedings in the trial Court.

Essentially these grounds are alleging non-compliance with the provisions of s 17A (2) of the Law Reform (Fatal Accidents and I

A Miscellaneous Provisions) Ordinance, Cap 360, as amended by Act No 27 of 1991. That sub-section provides that:

'17A (2) In any proceedings involving the interpretation of the Constitution with regard to the basic freedoms, rights and duties specified in Part III of Chapter I of the Constitution, no B hearing shall be commenced or continued unless the Attorney-General or his representative designated by him for that purpose is summoned to appear as a party to those proceedings; save that if the Attorney-General or his designated representative does not appear before the Court on the date specified in the summons, the court may direct that the hearing be C commenced or continued, as the case may be, ex-parte.'

The sub-section requires that the Attorney-General be summoned as a party in the proceedings which involve the interpretation of the Constitution with regard to basic rights and freedoms enshrined in the Constitution. D

Mr Mbezi seemed to doubt the applicability of this provision to the facts of the present case which, in his view, did not raise the question of interpretation in the sense of clarifying some provision or provisions of the Constitution. With due E respect however, we think that this argument is misguided. The case seeks to challenge the constitutionality of Government Notice No 41 of 1992 which, it is alleged, is discriminatory on its effect and which denied the respondents their right to be heard before the appellant corporation, their land lord, effected rent increases F unilaterally and arbitrarily. We are of the settled view that these are matters which fall squarely within the purview of the sub-section, and we can find no justification for counsel's misgivings on that point. It seems that a question might G arise whether or not the claims of unconstitutionality can be remedied or redressed upon application, as in this case, for certiorari and prohibition, but that of course is a different matter; the point here is that the issue of constitutionality of a subsidiary legislation was raised, in which case sub-section (2) above quoted was applicable.

H The pertinent question now, therefore, is whether or not the trial was conducted in contravention of s 17A(2) of Cap 369 as amended by Act No 27 of 1991. For the appellant corporation it is alleged that it was, and the Attorney General is in agreement. However, the advocate for the respondents maintains that it was not. In an attempt to resolve this question we recorded additional evidence from a number of witnesses. Mr K M Mussa, Senior State Attorney I

Dodoma, in his evidence before us seriously disputed the endorsement on the A court record by the Trial Judge on 16 July 1994 to the effect that they did not wish to be heard and that counsel for the defendants/appellant corporation would take care of their interests. Mr Mussa denied making any such statement and indeed went on to say that on the day in question, i.e. 16 June 1994, he was on safari B away from Dodoma where the proceedings were being conducted.

Further additional evidence from witnesses confirms that on the day in question Mr Mussa did not, in fact, attend the court in Dodoma to state therein what has been attributed to him. On the evidence, what appears to have happened was that when on 16 June 1994 the Attorney General did not appear, and indeed there is no C indication whatsoever that he was summoned for this date, the Trial Judge adjourned the case briefly with instructions to his clerk, one Mr B S Kihame, to contact the office of the Senior State Attorney Dodoma to find out what was the position of the Attorney General in the matter. According to Mr Kihame who gave D additional evidence before us, he spoke to Mr Mussa over the telephone, and the gist of that conversation as reported back by Mr Kihame is contained in the Judge's endorsement on the file as reproduced earlier.

In a further attempt by Mr Mussa to establish his absence from Dodoma on the E particular day, he stated that between 12 June 1994 and 22 June 1994 he was away in Singida on a special assignment by the Minister for Justice, that he had taken out an imprest for his subsistence allowances covering that whole period, that he returned to Dodoma on 19 June 1994, and finally he referred to a document F dated 30 June 1994 against which he had retired the said imprest. He therefore maintained that he could not have been in Dodoma on 16 June 1994 to state that he is alleged to have told the Judge's clerk over the phone.

It is not conclusive that on 16 June 1994 Mr Mussa was not, or could not have G been, in Dodoma. While Mr Mussa maintains that he was away on that day and that he returned to Dodoma only on 19 June 1994, Mr Kihame, the judge's clerk, equally maintains that he spoke to him over the phone in Dodoma that day and got from him the information which he relayed to the judge. Thus it amounts to one H man's word against another, and there is really no good reason for preferring the one to the other. As the evidence stands, it is possible that Mr Mussa could have returned to Dodoma before 19 June 1994 and thus could have spoken on the phone to Mr Kihame on 16 June 1994.

However, even assuming that this is what, in fact, happened, does I

A it amount to saying that there was compliance with the provisions of sub-section (2) above quoted? In order to comply with that sub-section, it was necessary to show that the Attorney General or his representative designated for that purpose was summoned to appear as a party to the proceedings. Mr Mbezi contended that the Attorney General was duly summoned, and in support of this B submission he relied on a summons dated 19 October 1993 sent to the Attorney General and requiring him to appear for mention of the case on 12 November 1993. However, in that summons the Attorney General is not cited as a party. He is C summoned

merely as the Attorney General, while the only parties to the case are shown to be Tanzania Shoe Company Ltd and 28 Others (plaintiffs) and National Housing Corporation (defendant).
In this connection reference was made to the case of Lausa Alfan Salum and Others v Minister for Lands and Housing and Urban Development and National D Housing Corporation (1) in which, as in the present case, the constitutionality of Government Notice No 41 of 1992 was challenged. It was contended that in that case the Attorney General was not cited as a party, and yet this court proceeded to deal with the appeal on the merits. It seems to us, however, that that case is E distinguishable. In the first place in that case no objection was raised that the Attorney General was not cited or summoned as a party. In the present case, however, the non-summoning of the Attorney General was objected to from the very beginning of the trial. Indeed as shown above, Lausa's case cited the Minister F for Lands, Housing and Urban Development as a party, and at the hearing the Minister was represented by the Senior State Attorney. The clear object of sub-section (2) above quoted is to make sure that the government is afforded the opportunity to be heard upon a application for a prerogative order. Thus it seems to G us not an irregularity which went to the root of the matter. For, one can say that the Government was, in a real sense, a party to the case especially as the Senior State Attorney on behalf of the Attorney General and representing the Minister for Lands, Housing and Urban Development, appeared and participated in the proceedings. In other words the government was, in a true sense, afforded the H opportunity to be heard. There was compliance with the spirit, though not with the letter, of the sub-section, and had the Attorney General been cited instead of the Minister, it would not have made the slightest difference in the conduct of the proceedings.
In the instant case the summons which was addressed to the Attorney General was returned with an endorsement on it that: I

'Attorney General is not a part of (sic) this suit. I think that this notice was to be served to the A Secretary, National Housing Corp.'
It seems plain to us that by such endorsement the Attorney General refused, and rightly so in our view, to accept service. Thus we could find no justification whatsoever for the view that the said summons was asking the Attorney General to appear on 12 November 1993 for the purpose of mentioning the case only. But B as intimated earlier, there is not the slightest evidence or suggestion that any process was ever sent out to summon the Attorney General for the hearing of the case either on 16 June 1994 when the hearing commenced or any day subsequent thereto. C
Once we hold, as indeed we do, that the Attorney General was not summoned as a party to appear for the hearing on 16 June 1994, then there can be no basis for saying that Mr Mussa, the Senior State Attorney Dodoma, was summoned as the Attorney General's representative designated for the hearing on 16 June 1994. For, D the Attorney General cannot have designated Mr Mussa to take part in the proceedings on 16 June 1994 to which proceedings the Attorney General himself was not summoned and to which he was not a party. In which case, therefore, the calling by the court upon Mr Mussa on 16 June 1994 and what Mr Mussa is alleged

E to have said on that day that they did not wish to he heard etc. even if it be true, all this becomes wholly irrelevant for the simple reason that Mr Mussa was not the representative of the Attorney General within the meaning of the sub-section. In other words, in terms of the sub-section, Mr Mussa had no authority to be F contacted or to say anything on behalf of the Attorney General in this matter, especially after the Attorney General had expressly stated on the summons which was sent to him that he was not a party to the case.

It is true that the sub-section under consideration empowers the Court, in certain G circumstances to commence or continue hearing the ex-parte if the court so directs. But in this case the court did not direct that the hearing be commenced or continued ex-parte. Indeed, if we may say so in passing, the circumstances of the case could not have warranted any such direction. H

The available evidence therefore amply demonstrates that on 16 June 1994 the Attorney General or his representative designated for the purpose was not summoned as a party to the case before the court. Indeed the Attorney General was not summoned at all on that day or any day thereafter. Nor did the court direct that the proceedings be commenced or continued ex-parte. Section 17A(2) of I

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KISANGA JA

A Cap 360 as amended by Act No 27 of 1991 reproduced above is couched in mandatory terms, and in the light of the foregoing the hearing of the case was commenced and continued in contravention thereof. The trial was commenced and continued in the absence of the necessary party and in the absence of any B direction by the trial Court to do so. Thus the court proceeded without authority and that constituted a major defect which went to the root of the trial. It rendered the proceedings null and void. In the event, the appeal succeeds. The proceedings before the High Court are declared null and void and are accordingly set aside.

C As regards costs, counsel for the appellant corporation asked us to certify costs for three counsel on the ground that the appeal raised complicated issues and that it involved the calling of a number of additional witnesses to give evidence during the appeal.

D Although a total of 13 grounds of appeal were filed, only two grounds were argued, namely grounds three and four. These grounds raise the issue of commencing and continuing the proceedings in the absence of the necessary party, i.e. the Attorney General. That issue had surfaced from the very beginning. Indeed at some stage before the hearing started the trial Court had to rule, E following representations from the Bar, that the case be adjourned until the Attorney General was served. In other words the necessity of having the Attorney General participating in the proceedings was clearly seen and appreciated from the start. However, as it transpired, the Attorney General was never served and yet the trial commenced and proceeded without any direction by the trial Court to proceed without him. F

It ought to have been quite clear to the advocate preparing, or counselling the preparation of, the memorandum of appeal that the Attorney General's lack of participation in the proceedings must be made a ground of appeal. Upon a glance G through the proceedings, it should have been equally easy to see that the appeal stood great chances of succeeding on that ground alone.

In our considered view it was not really necessary to mobilize or enlist the services of three counsel to see or discover these points; a single advocate would do for the purpose. It is on that account that we find ourselves unable to certify costs for three counsel.
In the event, we allow the appeal with costs for one counsel only. H
1995 TLR p 259
A
[zRPz]SHABANI RASHIDI v REPUBLIC 1995 TLR 259 (CA)

Court Court of Appeal - Dar Es Salaam
Judge Kisanga JJA, Mfalila JJA and Lubuva JJA

Criminal Appeal No 194 of 1994 B
October 23, 1995
(From the conviction and sentence of the High Court of Tanzania at Dar es Salaam, Mackanja, J)
C
Flynote
Criminal law - Murder - Provocation - When the defence of provocation is available.
-Headnote
The appellant appealed to the Court of Appeal of Tanzania challenging his D conviction for murder and sentence of death by the High Court of Tanzania. His main ground was that the trial court did not accept that the defence of provocation was available to the appellant. The Court of Appeal considered this ground against the background of the appellant's denial of killing the deceased and that the relationship between the appellant and the women who the appellant alleged to have caught committing adultery with the deceased had terminated. E
Held:

(i) For the defence of provocation to avail the appellant two factors must be present: first that a relationship between him and Fatuma still existed and secondly he must admit to killing the deceased. F

(ii) There was ample evidence that the relationship between the appellant and Fatuma had effectively ended in 1986;

(iii) Once the appellant denied killing the deceased the defence of provocation disappeared and the Trial Judge was right in rejecting the defence of provocation. G
Case Infomation
Appeal dismissed.
No case referred to.
Mselemu for the appellant.
Korosso for the respondent. H
[zJDz]Judgment
Mfalila, JA read the following ruling of the court:

The appellant Shabani Rashidi was charged with and convicted of murder by the High Court (Mackanja, J) sitting at Dar es Salaam. Consequent upon this conviction he was sentenced to death. This appeal is against the conviction and sentence. I

1995 TLR p260

MFALILA JA

A The facts are not complicated. According to the prosecution witnesses, the appellant and a woman, Fatuma Hussein (PW1), cohabited as man and wife from 1983 to 1986 when they formally ended their relationship. They even divided B whatever they had earned together, in particular from produce. Fatuma then lived as a single woman with her parents from 1986 to 1988 when the deceased Ayubu Hatibu started courting her. With her parent's consent, she accepted his advances and they soon developed a love relationship. According to Fatuma, the deceased C intended to marry her. Then on 28 January 1988 at about 10 pm as the two of them were seated in her bedroom, the appellant suddenly burst in and without much ado proceeded to stab the deceased. He stabbed him in the stomach. Both the deceased and his lover ran out of the house shouting for help, the deceased clutching his stomach perhaps to prevent the intestines from pouring out. The D appellant caught up with him and started kicking him. Neighbours came in answer to the alarm. These included the Chairman Saidi Mwelupunge (PW3) and Fatuma's brother, Zuberi Hussein (PW2), who managed to separate the two. The E appellant told them that he had stabbed the deceased because he had found him committing adultery with his wife, Fatuma. The appellant was arrested and police from Chalinze Police Station took the deceased to hospital where he died of the injuries on 31 January 1988. The appellant was charged with this offence.

F In his defence, the appellant denied this allegation. He disputed the allegation that at the time of this incident his relationship to Fatuma had been terminated. According to him he had simply taken a second wife and he used to alternate between the two women. On the fateful day, he was supposed to be at the home of the second woman. But because one of his children with Fatuma was ill, he G decided to go and visit Fatuma's home to see how the child was doing. It was during this unexpected visit that he found Fatuma and the deceased committing adultery. He became extremely provoked he said. He got hold of the deceased and pulled him down from the bed and he fell down. When the deceased got up he saw him holding a knife. Seeing this, the appellant said, he kicked the deceased on H the legs. As the deceased fell down, he fell on the knife he was holding. When he got up, he ran out of the house. The appellant added that he pursued the deceased while raising an alarm and caught up with him about 100 paces from the house. When neighbours answered his alarm, he told them that he had found the deceased committing adultery with his wife. They started assaulting the deceased, but I

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MFALILA JA

when at last they saw who he was, they stopped their assaults. The appellant A therefore denied the charge that he murdered the deceased.

After considering the whole evidence, the learned Trial Judge rejected the appellant's version of events. He believed Fatuma's evidence and on that basis B rejected the appellant's possible

defences of self-defence and provocation. He rejected the defence of self-defence because the deceased was not armed with any weapon and he rejected provocation because his relationship with Fatuma had ended two years previously. Fatuma was free to take another lover. He therefore convicted him and sentenced him as indicated. C

In this appeal, only one substantial ground was filed on behalf of the appellant, that the learned judge erred both in law and fact rejecting the appellant's defence of provocation and that the appellant should have been given the benefit of doubt. D

At the hearing of the appeal, Mr Mselemu from the Tanzania Legal Corporation advocated for the appellant, and argued that as there was no formal dissolution of the relationship between the appellant and Fatuma, the appellant was entitled to be provoked when he found the deceased committing adultery with his wife or concubine. In rebuttal, Miss Korosso learned State Attorney who appeared for the E Republic, argued that the defence of provocation was not available to the appellant because at that time there was no relationship between him and Fatuma, such relationship had already come to an end. F

On our part we think that for the defence of provocation to avail the appellant, two factors must be present. First, that a relationship between him and Fatuma still existed, and secondly, he must admit to killing the deceased. As to the first factor, G there was ample evidence which was accepted by the trial Court, and in our view rightly, showing beyond controversy that whatever relationship there was between the appellant and Fatuma, it had effectively ended in 1986. From then on, Fatuma considered herself free and indeed she was free to take on another lover. On this basis, she informed the appellant that she had already got another man, H hence he could only visit to see the children. The second factor was also absent because the appellant denied killing the deceased. According to him, the deceased fell on his own knife he was holding in readiness to stab him. Once this version was rejected as it was, then the defence of provocation disappears. We are therefore satisfied that the Trial Judge was right in rejecting the defence of pro- I

A vocation. It was not available to the appellant in the circumstances of this case.

This being the only ground of appeal, we are satisfied that this appeal has no merit and we dismiss it in its entirety. B

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C

[zRPz]GEORGE SHAMBWE v NATIONAL PRINTING COMPANY LTD 1995 TLR 262 (CA)

Court Court of Appeal - Dar Es Salaam
Judge Omar JJA, Mnzavas JJA and Lubuva JJA D

Civil Appeal No 19 of 1995
October 27, 1995

E (From judgment of the High Court of Tanzania at Dar es Salaam, Mkude, J)

Flynote

Contract - Contract of Sale of Land - Agreement reached but vendor refuses to sign it despite benefiting from consideration furnished by purchaser - Effect thereof. F

Land law - Disposition of interest in land - Agreement is made but vendor despite receiving and benefiting from consideration under the agreement, refuses to sign it - Consent to transfer not sought and obtained from the Commissoner for Lands - Whether there was a sale agreement - Rule 3 of the Land Regulation. G

-Headnote

After an agreement had been reached between a vendor and purchaser of an interest in land and after the vendor had benefited from the consideration under the agreement the vendor refused to sign the written agreement and sought to disown the agreement altogether. The vendor sued the purchaser claiming vacant H possession of the suit premises. The vendor argued that there was no agreement because the consent of the Commissioner for Lands had not been sought and obtained as required by reg 3(1) of the Land Regulations 1948. The High Court found that there was an agreement between the vendor and the purchaser, that the vendor had breached that agreement by his refusal to execute the written agreement and that though inoperative for lack of approval of the I

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LUBUVA JA

Commissioner for Lands the agreement was nevertheless binding as between the A vendor and the purchaser. The vendor appealed to the Court of Appeal of Tanzania arguing that there was no agreement of sale of the house.

Held:

(i) On the basis of the evidence there was a concluded agreement for sale of the house between the appellant and the respondent; B

(ii) It is not correct to say that because the approval of the Commissioner for Lands had not been obtained therefore there was no agreement of sale between the appellant and the respondent;

(iii) Though the agreement for sale of the house was inoperative as it was not C approved by the Commissioner for Lands, it did not also mean that there was no binding agreement as borne out by the evidence;

(iv) An agreement for disposition of a right of occupancy is inoperative in the sense that property does not pass unless and until the approval of the Commissioner for Lands is obtained.

(v) Having breached the agreement the appellant cannot validly resort to reg 3(1) of the Land Regulations, 1948 in defence; D

Case Infomation

Appeal dismissed.

Cases referred to:

(1) Peter Karanti and 48 others v. Attorney General Civil Appeal No 3 of 1988 (unreported) E

(2) J M Kasuka v. George Humba, Civil Appeal No 35 of 1990

(3) Millen Richard v. Ayub Hoza [1992] TLR 385

(4) Fazal Kassam v A N Kassam [1960] EA 1042

Semgalawe for the appellant. F

Maira for the respondent.

[zJDz]Judgment

Lubuva JA delivered the following considered judgment of the Court: G

This appeal arises from the decision of the High Court (Mkude, J) in Civil Case No 123 of 1990. In that case the plaintiff, George Shambwe (hereinafter called the appellant) had instituted a suit against the defendant, the National Printing Company Limited (hereinafter called the respondent) seeking among other reliefs, H a declaratory judgment that the sale agreement between the appellant and the respondent for the purchase of the house was inoperative and an order for vacant possession of the suit premises by the respondent.

The background to the case is simple and the facts are also not disputed. The appellant owned a house on Plot No 86 Wakulima I

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LUBUVA JA

A Road, Kinondoni District within the City of Dar es Salaam. The house was mortgaged to the National Bank of Commerce as security for the loan which the appellant had raised from the bank. For the initial period up to 30 July 1987 the respondent/defendant had rented the house from the appellant/plaintiff. While still B in occupation of the house under the rental arrangement, the respondent expressed his interest to purchase the house from the owner, the appellant. Negotiations started and it was agreed that the purchase price for the house would be Shs 850,000/=. It was further agreed that the respondent would pay part of the C purchase price to the National Bank of Commerce in order to redeem the mortgage and the balance of Shs 143,000/= to be paid to the appellant through his lawyers M/S Kijugo and Company, Advocates, who, it was intended would settle the appellant's other financial commitments. On the other hand, for the purpose of effecting the sale transaction of the house, the defendant company had sought the services of the Tanzania Legal Corporation. D

It is apparent, however, that though the respondent company had as agreed paid certain sums of money towards the redemption of the appellant's mortgage, the mortgage still remained unredeemed at Shs 483,631/= by December 1989. In E these circumstances, the appellant decided to redeem the mortgage directly. With the assistance of his wife, the appellant paid to the National Bank of Commerce Shs 455,000/=. The respondent was notified by letter from the appellant that whatever amount of money the respondent had paid to the bank would be treated as rent for the period that the respondent had occupied the house. This, it appears F sparked off controversy between the appellant and the respondent over the house in dispute. The appellant was pressing for the respondent to vacate the house in which he wanted to effect repair works. On the other hand, the G respondent was refusing to vacate the house for which he was

demanding the plaintiff to effect the transfer in terms of the sale agreement. Before the High Court at Dar es Salaam, as indicated, the appellant/plaintiff instituted a suit against the respondent company. The learned Trial Judge dismissed the suit with costs to the defendant. Aggrieved by that decision, the appellant has appealed to this Court. H

Mr Semgalawe, learned advocate for the appellant has filed and argued the following two grounds of appeal:

'1. That the trial Honourable Judge erred in law in holding that the appellant was in breach of the sale agreement, which I

agreement was not executed, and consented to by the Commissioner for Lands. A

2. That the Honourable Judge erred in law in not granting reliefs sought by the appellant because he found it would be inequitable to grant reliefs as the appellant was in breach of the sale agreement.' B

Arguing on ground one before us, Mr Semgalawe, learned Counsel was brief but pertinent, He strongly criticized the learned Trial Judge in holding that the appellant was in breach of the sale agreement. Learned Counsel took the view that the decision of the matter depended on the law governing the deposition of a right of occupancy as provided in the Land Regulations 1948. C

Repeating the appellant's argument before the High Court, learned Counsel submitted that in terms of reg 3(1) of the Land Regulation 1948 a disposition of a Right of Occupancy is inoperative if it is not in writing and is not approved by the D Commissioner for Lands. In support of this proposition, Mr Semgalawe referred us to the decided cases listed at page 94 of the proceedings which among others include our decision in Peter Karanti and 48 Others v Attorney General (1), J M Kasuka v George Humba (2) and Millen Richard v Ayub Hoza (3). On the basis of reg 3(1) and the fact that the Commissioner for Lands had not approved the E disposition, Mr Semgalawe maintained there was no agreement which the appellant was held by the learned Trial Judge to have breached. Alternatively, it was Mr Semgalawe's submission that if there was such an agreement, it was not legally enforceable. This aspect, the learned Counsel asserted, was not taken into account properly by the learned judge. F

Mr Maira, learned Counsel for the respondent, submitted that the learned Trial Judge's decision could not, in the circumstances of the case be faulted. Elaborating on this, Mr Maira referred to the time-honoured maxim 'he who resorts G to equity must come with clean hands'. He submitted that it would be inequitable, unjust and repugnant to justice to sustain the appellant's appeal because his case was fraught with fraud which was admitted by the appellant at page 58 of the proceedings. He also submitted that having regard to the H background of the case as a whole, it was clear that the appellant and the respondent had entered into a sale agreement which was legally binding upon them. That on the basis of the agreement, there was consideration from the respondent which the appellant benefited, i.e. the appellant had his mortgage with the National Bank of Commerce satisfied as the respondent effected I

A the payment for the sale price to the bank (NBC) as agreed. It was Mr Maira's further submission that the appellant should not be allowed to benefit from his own breach which resulted in the breach of the sale agreement when the respondent had complied with the terms of the agreement. In conclusion, Mr Maira argued that B by refusing to sign the sale agreement, the approval of the Commissioner for Lands could not be obtained as there was no executed legal document upon which such approval could be sought.

C We have given anxious and close consideration to these submissions. It is our considered view that the decision of this case turns around a narrow issue. That is, whether there was an agreement which was breached by the appellant/plaintiff. With respect, we agree with Mr Maira, learned Counsel for the respondent, that in order to determine the issue concerning the agreement, it is necessary to take full D account of the historical background and circumstances of the case. As already indicated, it is common ground that the appellant and the respondent had come to an agreement to have the appellant's house purchased by the respondent. That it was agreed that out of the purchase price of Shs 850,000/= part of it was to be E paid to the National Bank of Commerce in order to redeem the appellant's mortgage and the balance was to be paid to the appellant's through his lawyer M/S Kijugo and Company advocates. The issue as raised by Mr Semgalawe, learned Counsel for the appellant, is that there was no binding agreement because the approval of the Commissioner for Lands was not obtained after the initial F agreement between the appellant and the respondent. Mr Maira, on the other hand ardently submitted that the appellant was in breach of the sale agreement.

G In order to have a clear picture of the historical background to the case we deem it appropriate to closely examine the following documents on record. First, there is the letter of 11 November 1986 which was addressed to M/S Kijugo and Company, advocates for the appellant, by the Tanzania Legal Corporation, on behalf of the respondent. With that letter, three copies of the sale agreement were enclosed for execution by the appellant. The appellant was required to return the H copies of the sale agreement after signing for further processing and Capital Gains Tax assessment. With this, as indicated earlier, the appellant did not comply. There is also the letter of 28 July 1988 addressed to the Chief Corporation Counsel by the appellant's advocates, M/S Kijugo and Company, Advocates. In that letter it is clearly stated that there was an agreement between I

the appellant and the respondent regarding the sale of the house and the A conveyancing process that was being handled by the Tanzania Legal Corporation. It is also indicated in the letter that any balance of the purchase price was to be paid to the advocate in order to settle the vendor's (appellant) other liabilities. Then there is the letter of 28 February 1990 exhibit D6 written to the NBC by M/S Kijugo B and Company, advocates for the respondent in connection with the sale of the house and the outstanding balance on the mortgage. In it is shown that the respondent had at 5 September 1985 paid Shs 540,000/= for the mortgaged amount of Shs 593,407/50=. Specifically, the respondent's advocates request for C a statement of account on the mortgage so that 'we may pay the balance of the amount owing including interest in order

that the mortgage could be discharged in our favour'. On these facts, which are not disputed, it seems clear to us that an agreement for the sale of the house had been reached between the appellant and the respondent. Following on the agreement, the various correspondences D including the letters referred above ensued. They all refer to an existing agreement which the parties, i.e. the appellant and the respondent, had entered.

On the basis of this evidence, we are satisfied that the learned Trial Judge was entitled to the conclusion that there was a concluded agreement for sale between E the appellant and the respondent. The evidence was duly considered. With respect, we are unable to accept Mr Semgalawe's argument that there was no binding agreement because the Commissioner for Lands had not sanctioned the sale transaction. We agree with Mr Semgalawe's statement that under the Land F Regulations 1948 the sale agreement was inoperative, as the correct position of the law on this point. Needless to labour more on it, suffice it to say that the cases cited by the appellant at the hearing of this appeal and the trial Court, have among other points underscored this position of the law. That list of authorities includes the decision of this Court in J M Kasuka v George Humba (2) and Millen Richard v Ayub Hoza (3). G

However, though it is the position of the law on this point, we wish to make it clear that Mr Semgalawe, learned Counsel, is not with respect correct in his assertion that because the approval of the Commissioner for Lands was not forthcoming H there was therefore no agreement of sale between the appellant and the respondent. This is so because, in the instant case though the agreement for sale of the house was inoperative as it was not approved by the Commissioner for Lands, it did not also mean that there was no binding agreement as borne out by the evidence. In our understand- I

A ing an agreement for a disposition of a right of occupancy is inoperative in the sense that property does not pass unless and until the approval of the Commissioner for Lands is obtained. In this sense, being inoperative, and as we stated in the case of J M Kasuka v George Humba (supra), where a disposition is B inoperative by virtue of reg 3(1) it is void ab initio, and, therefore all the terms of the agreement to the disposition are void and therefore unenforceable. In the instant case, the situation is distinguishable. The learned Trial Judge correctly took the view that the appellant, the vendor was in breach of the agreement even though the approval of the Commissioner had not been obtained, In his judgment, the learned judge stated: C

'The position as it is now is that it is the vendor who is guilty of breach of contract by refusing to sign the sale agreement. The reason he has given for not signing the agreement is a lame excuse which he has concocted against his agreement with the purchaser/defendant. By D refusing to sign the agreement and return it to M/S Tanzania Legal Corporation for further processing to its logical conclusion he has brought everything to a stand still. It would be letting the plaintiff benefit from his own breach to give (L) (sic) him the remedies he is seeking....' E

From this, it is crystal clear that in this case, unlike the situation obtaining in the case of J M Kasuka v George Humba (supra) and Fazal Kassam v A N Kassam (4) an agreement for sale had been reached prior to the stage when the F Commissioner's approval was to be sought. As

found by the learned judge, it was at the stage when the appellant was required to execute the sale agreement that he refused to sign the document. With this refusal to sign, nothing further could be done in executing the sale agreement. As a result, the approval of the G Commissioner could not be obtained. For that reason, we agree with the learned Trial Judge that the appellant was in breach of the sale agreement reached between him and the respondent, the buyer. Having breached the agreement in these circumstances, the appellant cannot validly resort to reg 3(1) of the Land Regulations 1948 in defence. The Commissioner's approval is sought after all the H initial formalities including the signing of the sale agreement are completed. Due to the appellant's conduct, execution formalities could not be accomplished and the Commissioner's approval could not be obtained. It is our considered view that the learned judge's finding that the appellant had breached the agreement was justified. Therefore, ground one fails. I

1995 TLR p269

LUBUVA JA

Before dealing with the next ground, we wish to make brief mention of an aspect A which was raised by Mr Maira, learned Counsel for the respondent. This he did when he was addressing on ground one. As already pointed out, Mr Maira had submitted that the appellant's appeal should not be entertained because the appellant did not come to seek justice with clean hands. He referred to page 58 of B the proceedings in which the appellant had admitted to have told lies in court. On record, the appellant had stated:

'I wrote a personal letter to Mr Kusaga, the NPC GM on 2/4/85 in which I said I had signed the agreement. By this time I had not signed the agreement so I lied to Mr Kusaga because I was in a hurry.' C

During the hearing of the appeal, at the prompting of the Court, Mr Maira, learned Counsel correctly in our view, did not press any further on the issue of fraud. This is because it is common knowledge that as the issue of fraud was not raised in the pleadings, that issue was never before the High Court. With respect, we find D no basis upon which this court as an appellate Court could entertain at this stage the issue of fraud.

We come to the last ground of appeal i.e. ground two. This ground is closely linked E with ground one. Under this ground, the appellant seeks to fault the Trial Judge for not granting the reliefs sought. Arguing this ground, Mr Semgalawe briefly reiterated his arguments in support of ground one, Essentially, it was his submission that there was no legally binding agreement which could be enforced against the appellant. He urged that in the absence of an enforceable agreement F the Trial Judge should have granted the reliefs sought by the appellant. Having taken the view that the appellant was in breach of the sale agreement, we think it is unnecessary to go any further into this matter. The reliefs sought were based on whether or not there was a breach of the agreement. This ground also fails. G

As the relief sought at the trial was a declaratory judgment that the agreement was inoperative, and as there was no counter-claim filed by the respondent for specific performance or damages, the learned Trial Judge correctly made no further orders. The respondent having spent sums of money towards the redemption of H the mortgage and other liabilities of the appellant, the

matter is left open for further processing and execution of the documents in order to effect the transfer in terms of the law.
In the event, the appeal is dismissed with costs to the respondent. I
1995 TLR p270
A
[zRPz]ENOCK M CHACHA v MANAGER, NBC TARIME 1995 TLR 270 (CA)

Court Court of Appeal - Mwanza
Judge Omar JJA, Mnzavas JJA and Mfalila JJA

B Civil Appeal No 20 of 1995
November 6, 1995
(From judgment of the High Court of Tanzania at Mwanza, Masanche, J)
Flynote
C Civil Practice and Procedure - Appeals - Appeals to Court of Appeal of Tanzania - Where appeal must be with leave of the High Court and no such leave is sought and obtained - Appeal incompetent - Appellate Jurisdiction Act, 1979, s 5(1)(c).
-Headnote
D The appellant got an ex-parte judgment against the respondent in a District Court. When he moved to execute the judgment the respondent filed two applications one for stay of execution and the other for setting aside the ex-parte judgment. The court allowed the former and refused the latter application. The E respondent bank successfully appealed to the High Court. Aggrieved by the decision of the High Court the appellant appealed to the Court of Appeal of Tanzania without first seeking and obtaining leave of the High Court.
Held:
F Since the appellant neither sought nor obtained leave to appeal to this Court the appeal is incompetent for non-compliance with s 5(1)(c) of the Appellate Jurisdiction Act, 1979.
Case Infomation
Appeal dismissed.
No case referred to.
[zJDz]Judgment
G Mfalila, JA delivered the order of the court:
There is absolutely no merit in this appeal. It all started at Tarime District Court where the appellant sued the respondent bank to recover damages amounting to Shs 3.5m for unlawfully dishonouring his cheque for Shs 20,000/= which he had H intended to pay for the balance of the cost of a motor vehicle. The respondent bank failed to file the written statement of defence within the stipulated time. The appellant was therefore allowed to prove his claim ex-parte. This was done and the Court entered judgment is his favour as prayed. It was when the appellant moved to execute the judgment I
1995 TLR p271

MFALILA JA

that the respondent bank realised of the existence of the judgment against it. It filed A two applications, one for stay of execution and the other for setting aside the ex-parte judgment. The application for stay of execution was granted while that for setting aside the ex-parte judgment was dismissed. The respondent bank successfully appealed to the High Court against this refusal. The High Court B (Masanche, J) allowed the appeal on the basis that the appellant did not prove his claim as a whole and the special damages claimed. In the circumstances the learned judge was of the view that it was necessary to have the case tried. Against this decision the appellant lodged this appeal. C

His claim and only complaint in this appeal is that the application to set aside the ex-parte judgment in the district court was out of time and therefore time-barred and that therefore the district court correctly and rightly dismissed the application to set aside the ex-parte judgment. D

There are two reasons why this appeal must fail. Firstly, the question of limitation is being raised for the first time in this Court. The points should have been raised in the courts below who would then have made a ruling on this issue. This Court cannot give decisions as a court of first instance. Secondly, under s 5(1)(c) of the E Appellate Jurisdiction Act, appeals like the present must come to this Court only with the leave of the High Court. The appellant neither sought nor obtained leave to appeal to this Court. The appeal is therefore incompetent for non-compliance with s 5(1)(c) aforesaid. F

In the result as we have indicated earlier this appeal has no merit and we reject it summarily. The order of the High Court should now be complied with. G

1995 TLR p272

A

[zRPz]NATIONAL BANK OF COMMERCE v DAR ES SALAAM EDUCATION AND OFFICE STATIONERY 1995 TLR 272 (CA)

Court Court of Appeal - Dar Es Salaam

Judge B Omar JJA, Mnzavas JJA and Lubuva JJA

Civil Appeal No 16 of 1995

November 24, 1995

C (From the decision of the High Court of Tanzania at Dar es Salaam, Bubeshi, J)

Flynote

Civil Practice and Procedure - Temporary injunction - When applicable - Order 37 Rule 1 of the Civil Procedure Code.

D Civil Practice and Procedure - Temporary Injunction - Order of injunction sought to set aside the sale of a house - Whether proper.

Civil Practice and Procedure - Temporary injunction - Whether may be issued against strangers to the suit.

Banking Law - Securities - Mortgages - Mortgage deed empowering mortgagee to sell the mortgaged property - Whether and under what circumstances Court may interfere with such sale. E

-Headnote

The respondent borrowed money from the appellant bank. As security, a house was mortgaged in favour of the appellant. Upon failure to repay the loan which had swollen more than seven fold the appellant exercised its right under the mortgage F deed and sold the house. After the sale of the house the respondent filed a suit followed by, on the next day, a chamber application filed under 0.37 R.1 and ss 48 and 95 of the Civil Procedure Code for an order of temporary injunction restraining the NBC and Registrar of Titles from transferring title of the house and preventing eviction of tenants therefrom. The judge who heard the application issued an order G that the sale of the house be set aside, and that NBC and the Registrar of be restrained from transferring the title to the house and further prevented eviction of the tenants. Aggrieved the appellant appealed against the decision of the High Court arguing, inter alia, that the order to set aside the sale of the house was not properly given under 0.37 R.1, temporary injunction may not be issued against strangers to the suit, and that the court had no power to interfere with the appellant H while exercising its power under the deed of mortgage.

Held:

(i) Where a mortgagee is exercising its power of sale under a mortgage deed the Court cannot interfere unless there was corruption or collusion with the purchaser in the sale of the property; I

1995 TLR p273

OMAR JA

(ii) Order 37 Rule 1 was inapplicable in the circumstances of the case A because there was no court decree in execution of which the house was sold;

(iii) Order 37 Rule 1 would not be applicable in this case on account of the fact that the house was mortgaged in which case it could be sold in execution of the mortgage without resort to a court decree; B

(iv) Since the order setting aside the sale of the house was a nullifying act it could not be obtained in an application for temporary injunction under Order 37 Rule 1.

(v) A temporary injunction cannot be issued against strangers to a suit.

Case Infomation

Appeal allowed.

Case referred to: C

(1) Garden Cottage Food Ltd v. Milk Market Board

Uzanda for the appellant.

Maira for the respondent. D

[zJDz]Judgment

Omar, JA delivered the following considered judgment of the Court:

This appeal was brought by Mr Uzanda, learned Counsel for the appellant, National E Bank of Commerce, to oppose the High Court order (Bubeshi, J) which set aside the sale of a house on

plot No 5 Block 3A Kinondoni, Dar es Salaam. The order also restrained the NBC and the Registrar of Titles from transferring Title No 22576 of this house to any person, and also prevented eviction of tenants from this house. F

In 1986 the respondent, Dar es Salaam Education and Office Stationery, decided to gain liquidity at the appellant bank (that is National Bank of Commerce, Bank House Branch) where it held an account. The directors of this company applied for an overdraft facility first of Shs 400,000/= in February 1986 to be followed by another overdraft of Shs 1,000,000/= in August 1986 and lastly of Shs 2,000,000/= in March 1987. G

The Director of respondent company, Mr Omari Mgeni, deposited the title deed of his own house situated at Kinondoni as security for the second overdraft of Shs 2,000,000/=. In May 1994, seven years later, the appellant bank informed the H respondent company that the debt had risen to Shs 15,371,538/20/= and that if not settled the house so mortgaged to them would be sold. It was sold which gave rise to the first application to the High Court by the respondent company to set aside the sale and it was duly set aside for reasons given by the court and now appealed against by Mr I

1995 TLR p274

OMAR JA

A Uzanda, counsel for the bank, who made the following submissions: That the application was made and filed one day after the sale, that is on 30 November 1994, under Ord 37 rule 1 and ss 48 and 95 of CPC for a temporary injunction. The object of Ord 37(1) CPC 1966 is preventative, the whole purpose is to prevent or restrain so as to preserve the subject of the suit in status quo for the time being. B He cited vol III 6th ed page 3966 Chitley and Rao which explains that any order which has the effect of changing or disturbing or altering the status quo is not covered by Ord 37 rule (1). Mr Uzanda further stated that status quo as defined in C Garden Cottage Food Ltd v Milk Market Board (1) is the state of affairs existing immediately before the filing of the application and injunction should be to maintain the existing status before determination of the suit. The house was advertised to be sold on 7 September 1994 and it was sold on 29 November 1994 and the suit was filed on 30 November 1994. The High Court issued the order that the sale be D set aside, this Mr Uzanda argued was a nullifying act and not a restraining act and it cannot be made under Ord 37(1) CPC. Not only was the chamber application incompetent but the order was without legal authority. If only intended sale was under an execution of a decree but it was not the case, this he quoted E from Chitley and Rao vol III 6th ed and he submitted that the order of the High Court should be set aside. He further said that a temporary injunction cannot be issued against a stranger to the suit. Registrar of Titles is a stranger to the suit and he was by this order of Bubeshi, J restrained from changing the name of the F owner in his books. Purchaser of this house is also a stranger to the suit, he too was restrained by this order. Equity acts in personum not in rem. Mortgagee, that is the Bank, had a mortgage deed which entitled the Bank to sell without coming to G court. Section 48 CPC cannot be invoked because the mortgagee (the Bank) sold it; it was not attached property. NBC was a mortgagee and was exercising its power of sale under a deed of mortgage. Court cannot interfere unless there was a corruption of collusion with the purchaser in the sale of property. Unless the price is very much

less so as to import fraud, corruption or collusion. The High H Court, he argued, had no power to interfere with the sale. Temporary injunction was issued without legal authority and it should be set aside in its entirety, a declaration that the sale was valid and the costs to the appellant in both courts.

Mr Maira, learned Counsel for the respondent Dar es Salaam Education and Stationery Office, stated in reply that the property was auctioned on 19 November 1994, the certificate of auction was I

dated 8 December 1994 and the Chamber Summons was presented for filing on 1 A December 1994 it was meant to prevent or arrest the sale of this property in the words NBC should not continue with the sale of this property or that its completion should be arrested. Two houses were offered as security for this loan and the house situated at Singida if sold would deprive its owner of the roof over his head. B Mr Maira thereafter supported the ruling of the High Court and prayed that it should be left undisturbed. Mr Uzanda in reply to Mr Maira's submissions stated that they were all irrelevant. Even if the house had not been sold such order of setting aside a sale could not have been made under Ord 37(1) CPC because the C house was not in danger of being sold in execution of a decree, so the order could not be made at all. Also the order could not be made against Registrar of Titles, because temporary injunctions are not issued against strangers, purchaser of the house is also a stranger. The applicant/respondent was not a party to the D contract guaranteeing the loan. Mr Uzanda continued by saying that Mr Maira conceded that the respondent was indebted under the banking facilities. He further said that s 95 CPC was mentioned as an alternative to Ord 37(1) CPC; this is erroneous. A sale takes place when the hammer falls and this took place on 29 November 1994 and 30 November 1994 was the date of filing the application that E is why it was applied to be set aside. Corruption or collusion were not pleaded therefore the court was not entitled to interfere with the sale. Mr Uzanda said that Mr Maira had filed a suit for permanent injunction. Now he has applied for setting F aside which is sufficient to dispose of his matter, that is his remedy. Interlocutory order does not decide the rights of the parties but this one of the High Court did decide the rights of the parties. Mr Uzanda then prayed for this appeal to be allowed.

We have carefully considered these submissions. The central issue in this appeal G is the propriety of the order of 30 December 1994 by Bubeshi, J. In that order, the sale of House No 5 Block 3A Kinondoni, Dae es Salaam was set side. That was as a result of a chamber application filed by the respondent, Dar es Salaam Education and Office Stationery, under Ord 37 rule 1 and ss 48 and 95 of the Civil H Procedure Code. In the main suit which is still pending before the High Court filed on 30 November 1994, the respondent who was the plaintiff was seeking for judgment and decree against the appellant (NBC) as defendant for:

'an order for a permanent injunction to stop the sale of the property I

A situated on Plot No 5 Block 37A Kinondoni, Dar es Salaam until the facts in dispute are resolved in full.'

Otherwise the respondent was not disputing the debt and was willing to settle it upon the establishment of the extent of the debt. After the written statement was filed, before the hearing of the suit started, the respondent filed a chamber B application which sought to have the sale of the house on Plot No 5 Block 3A Kinondoni set aside. From the affidavit deponed by one Omari Mgeni, the Executive Director of the respondent Company and the submission by Mr Uzanda, C leaned Counsel for the appellant, it is apparent that the house in question was sold on 28 November 1994 when the matter was still pending before the High Court.

Under a certificate of urgency, on 1 December 1994, a chamber application was filed under Ord 37 rule 1 of the Civil Procedure Code to set aside the sale of the house. Order 37 rule 1 provides: D

'1.Where in any suit it is provided by affidavit or otherwise -

(a) that any property in dispute in a suit is in danger of being wasted, damaged, or alienated by any party to the suit or suffer loss of value by reason of its continued use by any party to the suit or wrongly sold in execution of a decree ...' (Emphasis supplied.) E

On the basis of this provision, can it be said that in the instant case, the property, the subject matter of the suit pending, was the property sold in execution of a court decree? In our view, from the facts of the case, the answer is affirmatively in the F negative. There was no court decree on the basis of which the house was sold. In that case, we are, with respect, in agreement with Mr Uzanda, learned Counsel for the appellant, that Ord 37 rule 1 was inapplicable in the circumstances of the case because there was no court decree in execution of which the house was sold. G Furthermore, it is our view that Ord 37 rule 1 would not be applicable in this case on account of the fact that the house on Plot No 5 Block 3A Kinondoni was mortgaged in which case it could be sold in execution of the mortgage without resort to the court decree.

H Next we address our minds on the sequence of events leading to the sale of the house and the time when the order setting aside the sale was issued. If the sequence of events was as set out by Mr Uzanda, learned Counsel for the appellant, which was not controverted by Mr Maira, learned Counsel for the respondent, the question is whether the order of injunction which sought to set aside the sale of the house was proper. The sequence of events was that the I

house was sold on 28 November 1994, the main suit was filed on 30 November A 1994 and the chamber application, the subject matter of this appeal was filed on 1 December 1994. As indicated, if by 30 December 1994 the house had been sold, was the application for a temporary injunction under Ord 37 rule 1 to set aside the sale on 1 December 1994 of any practical effect? It is common knowledge that the B purpose of an order for a temporary injunction as set out under Ord 37 rule 1 is to preserve and retain the status quo as obtains at the time immediately before the filing of the application until the determination of the suit. In this case, the matter had already been carried beyond the stage in which the restraining relief being sought would serve any purpose. That is, the house had already been sold in C which case there was nothing

from which the appellant would be restrained to do. The sale having taken place any measure aimed at preventing the sale from taking place would be an exercise in futility. This was the object of the main suit. As for D the sale, the subject matter of the chamber application, in this, with respect, we accept Mr Uzanda's submission that in the instant case, it was not a restraining act but a nullifying act which could not be sought in an interlocutory order under Ord 37 rule 1 of the Civil Procedure Code. It being a nullifying act, it could not, in our view, properly be obtained in an application for temporary injunction under Ord 37 rule 1. E

Mr Maira's submission that the High Court was entitled to make the temporary order under Ord 37 rule 1 because, as he stated though the sale of the house by auction had taken place, the legal formalities of conveyancing and transfer had not F been completed, is with respect, untenable. It is our considered view that setting aside the sale of the house not being a restraining act but a nullifying act, would appropriately be dealt with in the course of determining the main suit and not in an application for a temporary injunction. As it happened, with due respect to the G learned judge, the order of 30 December 1994 setting aside the sale of the house on Plot No 5 Block 3A Kinondoni pending the hearing of the main suit again renders the whole matter ineffectual. This is because, as pointed out, the main purpose of the main suit was to obtain a permanent order of injunction to stop the sale of the house until the facts are resolved in full. But by 28 November 1994, the H matter was overtaken by events when the house was sold. The sale could no longer be restrained.

Finally, we wish to make brief mention on the extent of the order of 30 December 1994. In that order, the Registrar of Titles was also I

A restrained from transferring Title No 22576 in respect of the house on Plot No 5, Block 3A Kinondoni. The purchaser of the house was also restrained from evicting the occupants of the house. As succinctly elaborated by the learned authors of Chitty and Rao, 6th ed, vol III, it is common ground that a temporary injunction B cannot be issued against strangers to the suit. In this case the Registrar of Titles and the purchaser of the house were not parties to the suit in which case, we accept Mr Uzanda's submission that it was not proper to have them included in the temporary order of injunction on 30 November 1994.

C For these reasons, we are satisfied that the order for temporary injunction issued to set aside the sale was without any legal basis. The matter had been overtaken by events. It is accordingly set aside. We allow the appeal with costs to the appellant.

E

[zRPz]MICHAEL JOSEPH v REPUBLIC 1995 TLR 278 (CA)

Court Court of Appeal - Dar Es Salaam
Judge Kisanga JJA, Mfalila JJA and Lubuva JJA

Criminal Appeal 199 of 1994 F
November 28, 1995
(From the judgment of the High Court of Tanzania at Dar es Salaam, Bahati, J)
Flynote
G Criminal Law - Armed robbery - What constitutes armed robbery.
Criminal Practice and Procedure - Charges - Charge of robbery with violence - In the commission of the offence an arm is used - Whether offence committed is one of armed robbery.
-Headnote
H The appellant was charged with robbery with violence. Evidence led showed that during the commission of the offence the appellant used a knife. The trial court convicted and sentenced him to thirty years imprisonment and five strokes of the cane. On appeal to the High Court the main issue raised was that the sentence imposed was not proper in law because the offence did not amount to armed robbery. The appeal was dismissed. On further appeal to the Court of Appeal of Tanzania. I
1995 TLR p279
LUBUVA JA
Held: A
(i) Though there is no express and specific definition of what constitutes 'armed robbery' it is clear that if a dangerous or offensive weapon or instrument is used in the course of a robbery such constitutes 'armed robbery' in terms of the law as amended by Act No 10 of 1989.
(ii) Weapons are not confined to firearms only, other types of weapons such as knives are also included; B
(iii) The offence involving the appellant was armed robbery.
Case Infomation
Appeal dismissed
No case referred to.
Mwengela for the respondent. C
[zJDz]Judgment
Lubuva, JA: delivered the following considered judgment of the court:
The District Court of Ilala District at Kivukoni convicted the appellant of the offence D of robbery with violence contrary to ss 285 and 286 of the Penal Code. He was sentenced to a term of imprisonment for thirty years. The appellant was further ordered to suffer five strokes of the cane. On appeal to the High Court (Bahati, J) the main issue raised was that the sentence imposed was not proper in law. He E contended that the trial magistrate erred in sentencing him to thirty years imprisonment because a mere knife was used in the commission of the offence in which case it was not armed robbery. In that situation, the appellant insisted, in terms of the provisions of Act No 10 of 1989, he should have been sentenced to fifteen years imprisonment for the offence of ordinary robbery. Dismissing the F appeal, the learned judge held that the offence was armed robbery because the knife used in the commission of the offence was a dangerous and offensive weapon. Still dissatisfied, this second appeal has thus been lodged. Again it is against sentence only. G

Complaining against the sentence, the appellant has filed four grounds of appeal. In addition to these grounds, at the hearing of this appeal the appellant submitted a handwritten memorandum which he claimed contained additional grounds of appeal. From these grounds, it is our view that in essence two points are raised in H this appeal. First, that the sentence imposed was not proper as the offence involved was not armed robbery. Secondly, that as the appellant was sixteen years of age at the time, he should not have been sentenced to thirty years imprisonment and five strokes of the cane.

For the respondent, Republic, Mr Mwengela, learned State Attorney, appeared before us. In regard to the appellant's claim that I

1995 TLR p280

LUBUVA JA

A he was sixteen years of age at the time of the trial before the District Court, he submitted that, that was not true. Referring to page 6 of the proceedings at the trial, Mr Mwengela pointed out that the record quite clearly shows that the appellant in his sworn defence statement declared he was twenty years of age. It B is inconceivable, Mr Mwengela stressed, that the appellant stated his age to be twenty years if, as a matter of fact he knew it was not so. Furthermore, Mr Mwengela contended, at the hearing of the appeal before the High Court the issue that the appellant was sixteen years of age was not raised. It was Mr Mwengela's submission that there was no basis for the appellant's claim that he should have been treated as a juvenile.

C We accept Mr Mwengela's submission that this ground is without merit. From record, the issue that the appellant was sixteen years old was neither before the trial Court nor the High Court on first appeal. As already pointed out by Mr D Mwengela, learned State Attorney, the facts as accepted by the two courts below do not bear him out on this. The appellant in clear and unambiguous terms stated in is defence at the trial that he was at the time twenty years old. What is more, on appeal to the High court, the age of the appellant was not raised at all. All that the E appellant complained on appeal at the High Court was in regard to the sentence of thirty years imprisonment. In such circumstances, we think it is not only too late in the day but that the appellant cannot be entertained in this in this court to raise an issue which was not before the two courts below. Furthermore, it is an issue F which, according to the record, the appellant clearly admitted that he was twenty years old. With respect, we are satisfied that it is a futile exercise for the appellant to seek to fault the learned judge on first appeal regarding the sentence imposed on the ground of his age.

G We revert to the ground that the sentence of thirty years imprisonment was improper. In his submission on this point, Mr Mwengela submitted that under Act No 10 of 1989 read together with s 286 of the Penal Code, once it is proved that a dangerous or offensive weapon or instrument was used in the commission of the robbery, such would be armed robbery. In the instant case, Mr Mwengela urged, H as a knife was used which is a dangerous or offensive weapon the offence involved was armed robbery for which the sentence imposed was proper.

On this ground, the only issue is whether the circumstances of the case, the offence involved was armed robbery. It is common knowledge that the object behind the enactment of the

Written Laws (Miscellaneous Amendments) Act No 10 of 1989 which amends I

1995 TLR p281
LUBUVA JA
the Minimum Sentence Act 1972, was inter alia, to raise the penalties for offences A of robbery with violence or attempt to commit such offences and the sue of arms or dangerous or offensive weapons. Otherwise, the basic definition of robbery still remains as provided for under the Penal Code. Under s 286 of the Penal Code which prescribes the penalties for robbery the circumstances under B which if robbery takes place, a sentence of life imprisonment with or without corporal punishment could be imposed are set out. In that section, in part, it is provided '... If the offender is armed with any dangerous or offensive weapon or instrument ...' (Emphasis supplied.) From this, and as correctly held by the C learned judge, though there is no express and specific definition of what constitutes 'armed robbery' it is clear to us that if a dangerous or offensive weapon or instrument is used in the course of a robbery, such constitutes 'armed robbery' in terms of the law as amended by Act No 10 of 1989. In this context, the weapons are, in our view, not confined to firearms only, other types of weapons such as D knives are also included.
In the instant case, the weapon used was a knife which as already indicated is a dangerous or offensive weapon. With respect, we are in agreement with the learned judge that the offence involving the appellant was armed robbery. We are E therefore satisfied that the sentence of thirty years imprisonment and five strokes of the cane on the appellant was properly founded in law. The appellant's complaint against the propriety of the sentence is untenable.
In the event, we dismiss the appeal in its entirety. F

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Cases Reported
1994 TLR p1
A
[zRPz]JUMA ALI KAZIYABURE v TANZANIA POSTS AND TELECOMMUNICATIONS 1994 TLR 1 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Msumi J

MISCELLANEOUS CIVIL CAUSE NO. 94 OF 1985 B
21 August, 1986
Flynote
Labour Law - Summary dismissal - Minister orders reinstatement of dismissed employee - Whether employer C may terminate services and pay statutory compensation instead - Security of Employment Act, Cap 574.
-Headnote

The respondent summary dismissed the applicant from employment. The Minister for Labour, in D agreement with the decision of the Reconciliation Board, ordered the reinstatement of the applicant. Instead of complying with it the respondent purported to terminate service on payment of statutory compensation and twelve months salary in accordance with s 40A(5) of the Security of Employment Act as amended by Act No 1 of 1975. E

The applicant then applied to the High Court for an order of specific performance of the Minister's decision. He also claimed damages arising from the respondent's failure to comply with that decision. The learned counsel for respondent was of the view that an employer can legitimately ignore the order of the Minister or Board for reinstatement provided he pays the aggrieved employee F statutory compensation, plus twelve months salary.

Held:

(i) There is no legal backing for the argument that an employer can legitimately ignore the order of the Minister or Board for reinstatement provided he pays the aggrieved employee statutory compensation plus twelve months salary; G

(ii) Section 27 and 40A(5) of the Security of Employment Act is where the Minister or Board has ordered for reinstatement or re-engagement it is the complainant employee, and not the offending employer, who may opt for one of the two alternatives. H

(iii) An employer who refuses to reinstate his employee in contravention of the decision of the Minister or Board risks having such decision executed against him by way of specific performance with or without payment of damages;

(iv) in addition to an order for specific performance, the court is empowered, under s 27(2) of I the Security of Employment Act, to award damages.

1994 TLR p2

Case Information

A Application upheld; respondent ordered to reinstate the applicant within thirty days.

No case referred to.

Teye, for applicant.

Kisaka, for respondent.

[zJDz]Judgment

B Msumi, J: These proceedings have been initiated under the provisions of s 27 of Security of Employment Act, cap 574 and Order XXI Rule 20 of Civil Procedure Code, 1966. The applicant is seeking the assistance of this court in executing the decision of the Minister of Labour who, in C agreement with the decision of the Reconciliation Board ordered for the reinstatement of applicant in his position as an employee of the respondent. Prior to the decision of the Minister, respondent had invoked a disciplinary action against the appellant by dismissing him summarily. In these proceedings respondent does not challenge the Minister's decision which according to law is final D and conclusive. However, instead of complying with it by reinstating the applicant, respondent purported to terminate his service on payment of statutory compensation and twelve months salary E in accordance with s 40A(5) of Security of Employment Act as amended by Act 1 of 1975. It has been submitted by the learned counsel for the respondent that

this provision gives an employer the option to terminate the service of his employee instead of reinstating him provided he pays him the stipulated compensation.

F The relevant provisions in this case are s 27 and 40A(5) of the Security of Employment Act, henceforth referred as the Act. Both sections are hereby fully quoted for ease of reference.

'27(1) The decision of the Minister on a reference to him under s 26, and subject to any decision on a reference to G the Minister therefrom the decision of a Board on a reference to it under this Part -

(a) shall be final and conclusive and

(b) shall be binding on the parties to the reference and the relationship between the parties in the consequence H of the matters in respect of which the reference was made shall be determined accordingly, and

(c) may be enforced in any court of competent jurisdiction as if it were a decree.

(2) In addition to its powers to execute any decision which requires the refund of any wages deducted or, expressly or by implication, the payment of any sum to any employee where a dismissal is ordered to take effect as the I termination of employment, a court in which it is

sought to enforce a decision of the Minister or a Board may make and enforce such orders as are necessary for the A specific performance of any decision for the re-engagement or reinstatement of any employee (notwithstanding that the court would not have power apart from this subsection to make or enforce such orders) and may award damages for the failure of the employer to carry out any such decision as if he had dismissed the employee B concerned wrongly (and if Part IV of this Act is in operation in relation to the employee concerned, such damages shall include the statutory compensation provided for in that Part.)'

Section 40A(5) provides -

`40A(5) Where a reinstatement or re-engagement has been ordered under this section and the employer refuses or fails to comply with the order - C

(a) in the case of an order made by a Board against which no reference has been made to the Minister within twenty eight days of the order being made, or

(b) in the case of an order made by the Minister on a farther reference to him, within fourteen days of the order D being made by the Minister,

the employer shall be liable to pay the employee compensation of an amount equal to aggregate of -

(i) the statutory compensation computed in accordance with s 35, and E

(ii) a sum equal to twelve months wages to which the employee was entitled immediately before the termination of his employment or, as the case may be, his dismissal.

and such compensation shall be recoverable in the same manner as statutory compensation the payment of which has been ordered under s 39.' F

As noted earlier, respondent refused to reinstate the applicant and instead he purported to terminate him on payment of statutory compensation and twelve months salary. The learned counsel for respondent is of the view that an employer can legitimately ignore the order of the

Minister or Board G for reinstatement or re-engagement provided he pays the aggrieved employee statutory compensation plus twelve months salary. With respect I can find no legal backing for such argument. My understanding of s 27 and s 40A(5) of the Act is that where the Minister or Board has H ordered for reinstatement or re-engagement the complainant employee may opt for one of the two alternatives. He may either apply to the court under s 27(1) of the Act to have the order executed as if it was a decree, or he can claim for payment of statutory compensation and twelve months salary as I provided under s 40A(5) of the Act. Either

1994 TLR p4

MSUMI J

A of these alternatives can only be initiated at the instance of the aggrieved employee and not the offending employer. An employer who refuses to reinstate his employee in contravention of the decision of the Minister or Board does so at the risk of having such decision executed against him by way of specific performance with or without payment of damages, or on the application of the aggrieved employee, he may be ordered to pay the employee statutory compensation plus twelve B months salary. An employer cannot, at his own initiative, choose to pay his aggrieved employee statutory compensation and twelve months salary as an alternative to comply with the Minister's or C Board's decision of reinstatement.

Essentially what the applicant is asking the court to do is to order specific performance of the Minister's decision. He is also claiming damages arising from the respondent's failure to comply with D the decision of the Minister. As far as reinstatement is concerned, the decision is quite clear, it says:

`Kwamba kufukuzwa kwake kazini mfanyakazi siyo sawa na halali. Hivvo arudishwe kazini kwake kama kawaida.'

E This is the decision which the applicant wants to execute by way of specific performance. However, in addition to making an order for specific performance, the court is empowered under s 27(2) of the Act to award damages. However, apart from his claim for various entitlements applicant has not claim and prove any damage. He is mainly claiming for payment of arrears of wages.

F In conclusion the application for the execution of the Minister's decision is hereby upheld. Respondent is ordered to reinstate the applicant with effect from 28 October 1983 the day when the Minister gave his decision. As a necessary measure for enforcing this decision it is further ordered G that respondent should reinstate the applicant within thirty days from the delivery of this ruling. For the avoidance of doubt it is specifically stated that applicant is entitled to be paid his arrears of salary H from 28 October 1983 to the time of his reinstatement. No order for costs is made.

1994 TLR p5

A

[zRPz]YOHANA BALICHEKO v REPUBLIC 1994 TLR 5 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Makame JJA, Kisanga JJA, and Omar JJA

CRIMINAL APPEAL NO. 119 OF1987 B
28 July, 1988
(Appeal from the conviction of the High Court of Tanzania at Mwanza, Kaji, PRM, Ext Jurisdiction) C
Flynote
Criminal Practice and Procedure - Sentencing - Sentence for manslaughter - Whether Court of Appeal may interfere with sentence imposed by the trial court. D
-Headnote
The appellant was charged with murder, but ultimately found guilty of manslaughter only and sentenced to 10 years imprisonment. In passing sentence on the appellant the Trial Court considered the fact that the appellant was 41 years of age, he was a first offender, and had been E remanded for four years, and that he was highly provoked by the misconduct of his deceased wife. On appeal:
Held:

(i) As a general rule this court will not readily interference with a sentence imposed by the High Court unless satisfied that the sentence was manifestly excessive, or that the sentencing F court failed to consider a material circumstance, or that it otherwise erred in principle.

(ii) In the circumstances of the case the sentence imposed, although heavy, was not manifestly excessive to warrant interference by this court.

Case Information
Appeal dismissed. G
Cases referred to:

1. R v Wilson Munsha 5 NRLR 87
2. R v Lukanfubila [1970] HCD n 175
3. Silvanus Leonard Nguruwe v R [1981] TLR 66

Rugarabumu, for the appellant, Swai, for the respondent.
[zJDz]Judgment
Kisanga JA: delivered the following considered judgment of the court:: This appeal arises from the decision of Mr S N Kaji, Principal Resident Magistrate exercising extended jurisdiction, in which he H convicted the appellant for manslaughter and sentenced him to ten years' imprisonment. The appellant had been charged with murder, but at the conclusion of a full trial the learned Principal Resident Magistrate found him guilty only of the lesser offence of manslaughter and proceeded to sentence him as above. The appeal is against sentence only.
It is important to set out, although very briefly, the background of this matter. The appellant was the husband of the deceased. The two had been husband and wife for quite some time and had had I

KISANGA JA

A seven children between them, five of whom are living. The deceased was given to heavy drinking, and this appears to be the source of the appellant's quarrel with her on many occasions. On the day of the incident the deceased returned home at night from a drinking spree; she was drunk. She had B been away for a considerable time leaving the young children at home unattended and without food. Upon her return home the appellant beat her up severely, using a stick, by way of punishment for disobeying his orders to stop drinking. In the course of such beating he inflicted on her what the medical witness described as `huge wound on the head' involving a depressed fracture of the skull C and a raptured main artery which caused intracranial haemorrhage leading to her death.

In passing the sentence the learned Principal Resident Magistrate duly took into account a number of mitigating factors nearly all of which had been put forward by the appellant. This is what he said,

D `The accused is 41 years old. He is a first offender. He has been in remand for about four years. He was very highly provoked by the misconduct of his wife (the deceased). It was only too bad that he used excessive force.

He is hereby sentenced to 10 (ten) years imprisonment.'

E Mr Rugarabamu the learned advocate who argued this appeal submitted that the sentence was manifestly excessive and urged us to reduce it. Counsel took the view that the severity of the sentence meeted out was out of proportion to the seriousness of the assaults inflicted. In this F connection he referred us to the case of R v Wilson Munsha (1), cited by Brian Slattery in his book titled A Handbook on Sentencing at 56. The relevant law report was not available in the Mwanza High Court Library and so we had to rely on what the learned author said. According to him the court in G that case held that:

`One criterion in deciding whether a case of manslaughter calls for a substantial sentence is to ask oneself whether if the injuries inflicted had not turned to be fatal, any charge, or any serious charge would have been brought against H the accused. If the answer is no, then only a light sentence is called for. If the answer is yes, a substantial sentence is called for.'

The thrust of Mr Rugarabamu's submission was that the circumstances of the present case involved I a purely domestic affair in which the appellant was chastising his wife for some family miscon-

duct, and in which death was not reasonably foreseeable. In those circumstances, counsel argued, A the appellant was really punished not for the dangerousness of his assaults on the deceased but rather for the gravity of the consequences of such assaults, namely, the resultant death which was not reasonably foreseen; and that was wrong. B

In further support of the submission that the sentence was manifestly excessive Mr Rugarabamu again referred us to a decision of the High Court in the case of R v Lukanfubila (2) in which the accused had raped a young girl aged about 10 years following which the victim bled profusely for several days and eventually died. The accused was convicted of manslaughter and sentenced

to C only five years' imprisonment. Thus Mr Rugarabamu's point is that by comparison, the sentence of ten years' imprisonment in the present case was manifestly excessive.

Mr Swai, the learned State Attorney appearing for the respondent Republic resisted the appeal and D submitted that the sentence was not manifestly excessive, especially bearing in mind that the maximum punishment for manslaughter is life imprisonment. Referring to the decision of this Court in the case of Silvanus Leonard Nguruwe v R (3), he submitted that the circumstances in the present case do not warrant interference by this Court. E

As a general rule this Court will not readily interfere with a sentence imposed by the High Court. As observed in Nguruwe's case cited above, we would not interfere merely because we think that if we had tried the case ourselves we might have imposed a somewhat different sentence. This court will F interfere only in limited circumstances including where we are satisfied that the sentence was manifestly excessive or that the sentencing court failed to consider a material circumstance or that it misdirected itself in some particular or that it otherwise erred in principle. Mr Rugarabamu's main G contention is that in assessing the sentence, the trial court proceeded on a wrong principle in that it sought to punish the appellant not for his assaults on the deceased but rather for the consequences of such assaults which consequences were not reasonably foreseeable. But with due respect to the learned counsel, the facts of the case do not support this argument. There was overwhelming H evidence that the appellant assaulted the deceased viciously. He repeatedly assaulted her that night using a weapon, namely, a stick. He renewed the assaults on the following morning. During these assaults the deceased suffered great pain, cried bitterly and pleaded for mercy requesting the I appellant not to kill

A her but in vain. Even when neighbours tried to intervene, he repelled them and inflicted a vicious assault on one of them (PW3) which sent him to the ground causing him to break his watch. These were clearly vicious and merciless assaults on a defenceless woman. Among the visible injuries B inflicted on the deceased during the assaults was a huge wound on the head involving a depressed fracture of the skull. Obviously that was a serious injury. Thus it seems plain that the appellant was duly punished for his vicious, merciless and dangerous assaults, and for the serious injuries he inflicted on the deceased. Indeed the court had a duty to impose heavy punishment to meet the C gravity of such vicious and ruthless conduct of the appellant. Viewed in that light, therefore, it becomes difficult to sustain Mr Rugarabamu's submission that the appellant was punished merely for the consequences of his assaults rather than for the dangerousness of those assaults.

D Mr Rugarabamu also referred to one mitigating factor or circumstance which the appellant had raised and filed as an additional ground of appeal namely, that the deceased left behind five children who it is his duty now to look after. The appellant did raise that matter before the sentencing court, E but in passing sentence the court made no reference to it. It is not clear whether the court overlooked it or whether it had it in mind but thought that it was not material. To give the benefit of that doubt to the appellant, we proceed on the basis that it

overlooked it. However, it seems unlikely that had the court duly considered that circumstance, it would have come to a different conclusion, having regard F to the viciousness and the dangerousness of the appellant's assaults on the deceased.
Looking at the case as a whole, it can be said with some justification that this was a bad case of manslaughter, verging on murder itself. When the deceased repeatedly cried bitterly saying that the G appellant was killing her and pleaded for mercy but the appellant continued to assault her with the stick that night and renewed the assaults on the following morning, that was very close to establishing malice aforethought on the part of the appellant. For, at least it must have been apparent H to him that the assaults were dangerous to the life of the defenceless woman. In all the circumstances of the case we think that the sentence of 10 years' imprisonment, although on the heavy side, was not so manifestly excessive as to warrant interference by this Court. In the result the I appeal is dismissed.
1994 TLR p9
A
[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v ESTON SELEMAN 1994 TLR 9 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Makame JJA, Kisanga JJA and Omar JJA

CRIMINAL APPEAL NO. 122 OF 1987 B
28 July, 1989
(From the conviction of the High Court of Tanzania at Tabora, Korosso, J) C
Flynote
Criminal Practice and Procedure - Sentencing - Sentence of conditional discharge and order to pay compensation - Whether convict may be remanded until compensation is paid. D
Criminal Practice and Procedure - Appeals - Failure of respondent to appear for hearing after being served - Whether hearing may proceed in the absence of respondent - Rule 72(6) of the Court of Appeal Rules 1979.
Criminal Law - Murder - Whether murder may be alleged without evidence of killing. E
-Headnote
In the District Court of Tabora the respondent was charged with being in possession of a firearm without a licence. He pleaded guilty and was convicted and sentenced to a fine of Shs 90/= or eight F months imprisonment in default. There was no indication as to whether or not he in fact paid the fine. The respondent was also charged with causing grievous harm to which he pleaded not guilty. At the end of the trial he was convicted and sentenced to a conditional discharge, and he was also ordered to pay Shs 15,000/= as compensation to the person grievously harmed. The respondent was G ordered to be remanded in custody until he pays the compensation money.
The Director of Public Prosecutions appealed to the High Court against sentence, praying for a custodial sentence and enhancement of the compensation.

At this point the High Court judge formed the opinion that the respondent should have been charged H with murder contrary to s 195 of the penal code and quashed the trial court proceedings and ordered the respondent's immediate arrest so as to be tried for murder.
Meanwhile, the appeal by the DPP came to the Court of Appeal but could not proceed because the respondent was absent and unserved. Next time again the respondent did not appear though he had I been served.
1994 TLR p10
A Held:

(i) Where the respondent is served but does not appear it is permitted to hear an appeal by virtue of Rule 72(6) of the Court of Appeal Rules, 1979.

(ii) Before the respondent's presence can be dispensed with under Rule 72(6), there must be B proof, as there is in the instant appeal, that the respondent was made aware of the time and place at which the appeal would be heard;

(iii) Where the respondent fails to pay the compensation ordered the next step would be to order distress, and only in default of distress is an accused person liable to imprisonment; C the order for remand in custody until compensation is paid was irregular;

(iv) A change of murder presupposes unlawful killing, but in this case there was no killing at all, let alone an unlawful one.

Case Information
Appeal allowed: case remitted back to the High Court for the appeal to be heard on merit complying with s 381 of the Criminal Procedure Act.
D No case referred to.
J Tendwa, for the appellant.
[zJDz]Judgment
E Makame, JA delivered the following considered judgment of the court:
This appeal by the Director of Public Prosecutions first came before this court in November 1988 but it was not possible to be proceeded with because the respondent, Eston Seleman, was absent and unserved. This time the respondent again did not appear but it was possible to hear the appeal, and F we heard it, because he has now been served and it is permitted to hear an appeal in such a situation by virtue of Rule 72(6) of Tanzania Court of Appeal Rules which provides:

G If on the day fixed for the hearing of an appeal the respondent does not appear in person or by advocate the appeal shall proceed unless the court sees fit to adjourn the hearing.

The above subrule must of course be read together with, and is subject to, Rule 72(1) which H provides that `The Registrar shall cause notice to be given to the appellant and to the respondent of the time and place of which an appeal will be heard' and Rule 73(1) which says that both the appellant and the respondent shall be entitled to be present at the hearing of the appeal. So that before the respondent's presence can be dispensed with under rule 72(6), there must be proof, as I there is in the instant appeal, that the
1994 TLR p11
MAKAME JA
respondent was made aware of the time and place at which the appeal would be heard. A

This appeal has a back-drop which is out of the ordinary. In the District Court of Tabora at Tabora the respondent was charged with being in possession of a firearm without a licence to which he pleaded guilty and was fined Shs 90/= or eight months imprisonment in default. There is incidentally no B indication as to whether or not he in fact paid the fine, so those responsible may wish to follow up that matter.

The respondent was also charged with causing grievous harm to which he pleaded not guilty. He C was duly tried and at the end of the trial he was found to have committed the act. He got a conditional discharge but he was also ordered to pay Shs 15,000/= as compensation to the person he had emptied his muzzle gun on.

Thereafter, incidentally, the learned trial magistrate committed the illegality of ordering the respondent to be remanded in custody until he paid the compensation money. This was on 19 March 1985 and D the respondent was accordingly remanded. Nine days later a prison officer, Cpl Kibira, apparently took some initiative: He went to the trial magistrate and told him,

> Your Honour the committal order is not clear as to what should be the fate of the convict if the compensation is not E paid. For how long should the convict remain in our custody?

The trial magistrate had the respondent brought before him on 1 April 1985 and when the respondent F informed the court that his relatives were looking for the money the magistrate further remanded him for fourteen days `to compel his relatives to pay the ordered sum. If they shall fail to pay them an order for distress shall be given'. G

The foregoing orders were irregular and it is distressing to note that the High Court made no comment on them when the matter reached there, albeit on some other issue, which we shall presently turn to. If the respondent failed to pay the compensation ordered the next step would be to order distress. Only in default of distress is an accused person liable to imprisonment, `for a term H not exceeding six months unless such (costs or) compensation shall be sooner paid'. There is no question of remanding him in custody to compel his relatives to pay.

The Director of Public Prosecutions appealed to the High Court complaining that the case was not fit for a conditional discharge I

A and that the compensation award was too small. The pubic prayed for a custodial sentence and enhancement of the compensation. The matter was taken before Korosso J on 26 February 1987 but the respondent was not in court. The State Attorney asked for an adjournment so that the respondent B might be served. His lordship did not grant the adjournment prayed for, instead he said:

> It is true that under normal circumstances the respondent must be present at the hearing of the appeal of this nature. But having gone on the evidence on both the prosecution and the accused as recorded by the trial court and I having formed the opinion that the respondent should in the first place have been charged with the offence of C murder c/s 195 of the Penal Code, I find it unnecessary hearing his evidence.

This must have been shattering to the learned State Attorney because not only was the appeal not D heard but, more important, the victim Lucas Jacob the respondent had shot at had not died and had in fact been PW1 at the trial. Little doubt that Mr Nyabiri, the State Attorney said,

E As the court had decided to order that the respondent be charged with the offence of murder I do not think I will have anything to submit to your Lordship.

When the learned judge eventually delivered the judgment on 2 March 1987 he quashed the trial F court proceedings and indeed ordered the respondent's immediate arrest so that he might be tried for murder.

Mr Tendwa, learned State Attorney before us, was quite brief. He pointed out what the Director of G Public Prosecutions had gone to the High Court for and the unexpected result he got. Mr Tendwa finally asked us to remit the matter back to the High Court for the appeal to be heard.

There is no doubt that the High Court order was unusual and we think it was an unhappy slip on the H part of the learned High Court judge: a charge of murder of course presupposes an unlawful killing, whereas here there was no killing at all, let alone an unlawful one. The Director of Public Prosecutions' appeal was not heard at all and the respondent had no opportunity to respond to the issues raised. This appeal must of necessity succeed. We accordingly allow the appeal and set aside the impossible order. We remit the matter back to the High Court for the High Court to hear the I appeal on

merit after duly complying with the provisions of s 381 of the Criminal Procedure Act. A

1994 TLR p13

C

[zRPz]BURA AE v REPUBLIC 1994 TLR 13 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Makame JJA, Ramadhani JJA and Mnzavas JJA

CRIMINAL APPEAL NO. 129 OF 1990 D
22 October, 1991
(From the conviction of the High court of Tanzania at Arusha, Mroso, J)
Flynote
Criminal Law - Murder - Intoxication as a defence to murder - Not established where the conduct of the accused E is inconsistent with a person intoxicated.
Criminal law - Murder - Defence of provocation - Not available where the deceased did not utter or do the acts of provocation alleged. F
-Headnote
The Appellant was convicted of murder by the High Court of Tanzania and sentenced to death. It was found that he had chased the deceased for some forty paces, stabbed him twenty- six times and then dragged the body half a kilometre to a valley. That same night he washed his blood stained shirt. G On appeal to the Court of Appeal, it was argued that the appellant acted

under provocation, and that he was so intoxicated that he was incapable of having the necessary mens rea for murder.

Held:

(i) The conduct of the appellant during and after the assault was inconsistent with a person H intoxicated within the meaning of the law;

(ii) Provocation was not available because the deceased did not utter or try to carry out the threats alleged by the appellant;

(iii) The appellant had the requisite mens rea for murder.

Case Information

Appeal dismissed.

No case referred to. I

1994 TLR p14

A Loom-Ojare, for the appellant.

Mrs Lyimo, for the respondent.

[zJDz]Judgment

Makame, JA delivered the following considered judgment of the court:

B Bura Ae was condemned to death by the High Court sitting at Babati (Mroso J), consequent upon his conviction for the murder of his brother-in-law, Qwatema Darabe, the husband of the appellant's sister, PW1 Maria Ae. The fact of killing was not denied, the only controversy being whether or not C the act amounted to the offence of murder.

Mr Loom-Ojare, learned advocate, argued the appeal before us on behalf of the appellant while Mrs Lyimo, learned State Attorney, supported the High Court decision. Mr Loom-Ojare submitted and argued four grounds of appeal. One of them, the third one, that there was a miscarriage of justice D because the learned judge asked the assessors for their `views' rather than their `opinions', we did not take seriously. It was pointed out to the learned advocate that he was splitting hairs really, one definition of `opinion' being a `mental view'. We wish to add that Hornby and Parnwell's An English-Reader's Dictionary gives `opinion' as one of the meanings of `view'. We certainly do not E think there is any merit in this third ground.

In the other grounds Mr Loom-Ojare submitted that his client was so intoxicated that he was F incapable of having the necessary mens rea for murder, that he in fact acted under grave provocation, and lastly that the finding of murder was on the whole against the weight of the evidence.

The deceased was married to PW1 and they had children together. The evidence was that he would G often assault her whenever he abused himself with liquor. On such occasions PW1 would remove herself to the homestead of the appellant and stay there until reconciliation was effected. She had done so eight times before the fateful occasion. On the material day PW1 had been at the appellant's place for two or three days before the deceased arrived at about 9 in the evening when the found H PW1 and their three children eating in a house about fifteen paces from the appellant's, and whose door faced that of the appellant's own house. According to PW1 the deceased, who was unarmed, called the children but when the eldest one said he was sleepy

the deceased allowed them to go and sleep. Just then PW1 heard the repeated cries of her sister-in-law, the appellant's wife, Yasinta Uo, I (who declined to testify in
1994 TLR p15
MAKAME JA
accordance with s 130 of the Evidence Act) to the effect that Bura, that is the appellant, had a spear. A Then PW1 heard the deceased crying out for help and people running. The following morning PW1 and Yasinta found a pool of blood some forty paces from PW1's house and some drag marks which they followed for about half a kilometre before they found the deceased's dead body in a dry valley. B
As we have already said, at his trial in the High Court the appellant owned that he had killed the deceased. He told the trial court that he had earlier that day imbibed a liquor called `Mangure', made of millet, and then drank an orange squash bottleful of `Moshi'. He got home at 6 pm and retired to C bed at 7 pm. When he went out to ease himself at about 9 pm he heard the deceased announce loudly that he would set the house on fire; indeed the deceased struck a match so as to set the appellant's house ablaze. The appellant took his spear, chased the deceased with it, and after some D five paces, when the deceased made to disarm the appellant, the latter stabbed the deceased once with the spear. Then the appellant dragged the deceased's body to a valley `because I was afraid and I knew I had done wrong. I threw the spear away from the dead body. . . .'
Mrs Lyimo urged us to find that the appellant was not intoxicated at the material time. She said if he E was he would not have done the things he did after the killing. Mrs Lyimo also submitted that the appellant lied about the deceased threatening to set the appellant's house on fire but later, in response to a question from the Bench, Mrs Lyimo said the appellant could have been provoked by the deceased to the house in which PW1 and her children were without first calling on the appellant. F
We are satisfied that this was a sure case of murder. We are convinced that the events and their sequence were as told by PW1. Like the three assessors and the Trial Judge himself, we are G satisfied that the appellant's story about the deceased wanting to set the appellant's house on fire was a fib. PW1's testimony, believed by the trial Court, and which we also accept as true, cannot accommodate the appellant's version of the events that evening. On his own account, when the appellant went outside, the deceased was calling his own children. `I heard him also say loudly that H people in the house would all be burnt down.' If this were true PW1 would have heard the utterance and we are also of the view that the deceased would not have been so daft as to allow his own children to go to bed in a house so close to the one he wanted to burn down.
We also regard the appellant's conduct during the assault and I
1994 TLR p16
A thereafter as inconsistent with a person who was intoxicated within the meaning of the law. He gave chase for some forty paces, not for only five as he said during his trial. He had the capacity to run that far and, after the twenty six stabs, he had the presence of mind, ability and composure to B drag the body half a kilometre to a valley, and know that `I had done wrong'. His blood-soiled shirt he washed the same night until `there was no blood stains left on the

shirt', and he had already left his homestead by the time his sister and his wife went looking for the deceased. Quite apart from his prevarication as to whether or not he was drunk that day, we have been unable to see evidence that C would reasonably persuade us to say he was intoxicated. We do not agree that Provocation was available because we do not believe that the deceased uttered the threats or tried to set the house on fire. Also we are unable to hold that the appellant was provoked by the deceased not first stopping by D the appellant's house before going to converse with his own wife and children.

We respectfully agree with the learned Trial Judge that the appellant had the requisite mens rea and that it was therefore murder that the appellant committed. We are satisfied that the High Court E decision was decidedly sound and so we dismiss the appeal entirely.

1994 TLR p16

F

[zRPz]AUGUSTINO KAGANYA, ATHANAS NYAMOGA AND WILLIAM MWANYENJE v REPUBLIC 1994 TLR 16 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Kisanga JJA, Ramadhani JJA and Mnzavas JJA

G CRIMINAL APPEAL NO. 63 OF 1990

15 November, 1991

H (From the decision of the High Court of Tanzania at Morogoro, Bahati, J)

Flynote

I Evidence - Evidence by witness of tender age - Witness aged fifteen years - Whether needing corroboration.

1994 TLR p17

Evidence - Credibility of witnesses - Trial court best placed to determine credibility. A

Criminal Law - Murder - Malice aforethought - Attacking a confessed thief with knife, club, fire, and utterances that he would die and be finished off - Whether establishing malice aforethought. B

-Headnote

The appellants were convicted of murder contrary to s 196 of the Penal Code and sentenced to death. They appealed to the Court of Appeal.

Their Counsel submitted that the evidence of PW3, Kayowina Mkuya, should not have been relied on by the trial court as the witness was of tender age and as such, her testimony needed corroboration. C It was further argued that they should have been found guilty of the lesser offence of manslaughter because they were merely beating a confessed thief and they did not intend to cause his death.

Held:

(i) As PW3 was fifteen years old when she gave her evidence on oath, her evidence did not need to be corroborated before being acted upon; D

(ii) As the decision regarding who attacked the deceased was wholly based on the credibility of the witnesses, it is the Trial Judge who saw and heard the prosecution and defence witnesses as they testified who is better placed that the appellate court to assess their credibility;

(iii) In a charge of murder, only where it is doubtful on the evidence that an accused intended to E kill or cause grievous harm to the deceased will the Court give the benefit of doubt to the accused and find him guilty, not of murder, but of manslaughter;

(iv) By their acts and utterances the appellants amply showed that they had formed a positive intention to kill the deceased.

Case Information

Appeal dismissed. F

Cases referred to:

1. Kasmiri v R, Court of Appeal, Criminal Appeal No 148 of 1990 (unreported).
2. R v Byarushengo and Another [1946] 13 EACA 187.
3. R v Kibia Arap Serem [1940] EACA 73. G

Mihayo, for the appellants.

Miss Chiwanga, for the respondent.

[zJDz]Judgment

Mnzavas JA, delivered the following considered judgment of the court:

The appellants were convicted of the offence of murder contrary to s 196 of the Penal Code by the H High Court (Bahati J), and sentenced to death. Dissatisfied with the finding of the lower Court they have jointly appealed to this Court.

Arguing against the conviction of the appellants Mr Mihayo, learned defence counsel, submitted that the evidence of PW3, Kayo- I

A wina Mkuya, should not have been relied upon by the trial Court as the witness was of tender age and as such, it was argued, her testimony needed corroboration before being acted upon to the detriment of the appellants. In support of his argument the learned counsel referred us to s 127(5) of the Evidence Act 1967 and the decision of this Court in Kasmiri v R (1). It was also submitted that B the evidence of PW2, Yusufu Rajabu, should not have been given any credence as it was evidence of an accomplice which needed corroboration. It was argued that as PW3's evidence needed C corroboration she (PW3), could not have corroborated the evidence of PW2.

In the alternative but without prejudice to the above argument Mr Mihayo submitted that the appellants were punishing the deceased who was a thief and that they did not intend to kill him. The Court was therefore asked to find the appellants not guilty of murder but guilty of the lesser offence of D manslaughter. Miss Chiwanga, learned State Attorney, on the other hand supported the convictions. She argued that PW2 was not an accomplice whose evidence needed corroboration before it was acted upon. As for the decision in Kasmiri v R (1) (supra) Miss Chiwanga submitted that the facts in E that case are distinguishable from the facts in the present case.

It was the learned State Attorney's argument that the decision of the High Court was based on the credibility of the witnesses and that the trial Court was in a better position to assess the credibility of F the witnesses than this Court. The Court was invited to dismiss the appeal.

The case for the prosecution that it was the appellants who, of malice aforethought, killed the deceased was supported by a neighbour of the deceased, (Juma Mchewa), one Yusufu Rajabu, G PW2. According to the evidence of Yusufu while he was at his house on 6 August 1987 at about 9 pm he heard an alarm from his neighbour, the deceased, who was saying that he was dying. He ran to deceased's homestead to render his assistance. There he met the first appellant who was armed with a knife. It was Yusufu's evidence in the lower Court that he heard the first appellant saying to the H deceased `you will die if you come out as you have stolen the property . . . of my brother'. At the time the deceased was inside his homestead. The witness also told the trial Court that the first appellant, Augustino Kaganya, then set the house on fire.

On being asked by PW2 why he was torturing the deceased the first appellant is reported to have I replied that he was torturing the

1994 TLR p19

MNZAVAS JA

deceased because he had stolen his (first accused's) brother's property. A

When the deceased managed to get out of the house which was already in conflagration and got into another house the third appellant is said to have set on fire this second house and said `they were to finish off the deceased'. The deceased again escaped from the second burning house and ran into B his shamba.

According to the evidence of PW3 the appellants chased and arrested the deceased and belaboured on him. The appellants were, according to the evidence of PW2, armed with a knife and a club. On the following day the witness was told by Athanasi, the second appellant, that Juma Mchewa had C been killed.

A step-daughter of the deceased, PW3, gave evidence to the effect that on 6 August 1987 at about 7 pm her stepfather returned home from a pombe shop and told them that while he was at the pombe shop the three appellants wanted to kill him because they alleged that he (deceased) had stolen D cooking pots from their relative.

As they were outside the house conversing, and the deceased smoking his tobacco, the first appellant emerged and snatched the tobacco from the deceased and stabbed him with a knife. E According to her evidence the deceased ran into his house and the first appellant set the house on fire and stood at the door brandishing a knife.

Like PW2, the witness also testified before the trial Court that when the deceased took refuge into another house William, third appellant, set this second house on fire. F

When the deceased escaped from the second house the appellants chased and caught up with him and attacked him. According to the evidence of PW3 the deceased cried out `let us go so that I show you where the things are'. Next morning deceased body was found lying in his shamba. G

In his defence first appellant denied knowing the deceased leave alone killing him. He advanced defence of alibi and said that Yusufu, (PW2), told lies against him because there was enmity

between them as he, (PW2), believed that he (first appellant) had reported to game scouts that he, H (PW2), was manufacturing bullets illegally. This defence was apparently not believed by the learned judge and in our view rightly so. If there was indeed such enmity one would have expected him to cross-examine the witness, PW2, on the alleged bad blood. That he did not do so tends to show that his defence of enmity was an afterthought. I

1994 TLR p20

MNZAVAS JA

A The second appellant, Athanas, also denied attacking the deceased. He said that he saw the body of the deceased in the morning as he was going to his work and reported to Yusufu, PW2, what he had seen.

B The third appellant, William, told the trial court that Yusufu had deliberately told lies against him as to cause his undoing because they had quarrelled over a girl. Like the first appellant he did not cross-examine Yusufu on the alleged enmity when he gave his evidence. And, like the first appellant, he did not tell the trial court why the young girl, PW3, should have decided to cook up such a serious C story against him.

Coming to the learned defence counsel's argument that the evidence of PW3 needed corroboration because she was a child of tender age the record shows that PW3 was 15 years old and gave her evidence on oath. Section 127(5) of the Evidence Act relied upon by the learned defence counsel in D support of his argument says:

`For the purpose of ss (2), (3) and (4) the expression "child of tender years" means a child of or below the apparent age of fourteen years'.

E As we have already stated above PW3's age was fifteen years at the time she testified and gave her evidence on oath. Her evidence did not therefore need to be corroborated before being acted upon.

As for the decision in Kasmir v R (1) quoted by the learned defence counsel we, with respect, agree F with Miss Chiwanga, learned State Attorney, that the facts in that case are clearly distinguishable from the facts in this case.

The decision of the High Court regarding the question as to who attacked the deceased on the G material night was wholly based on the credibility of the witnesses. The learned Trial Judge saw and heard the prosecution and defence witnesses as they testified. He was therefore in a better position to assess their credibility than this Court which merely reads the transcript of the evidence.

The learned judge came to the conclusion that PW2 and PW3 were credible witnesses and that their H evidence was a true account of what happened. We see no reason to differ with trial court's finding of fact.

As to Mr Nihayo's argument that the lower court should have found the appellants guilty of the lesser offence of manslaughter because the appellants were beating a confessed thief and that they did not I intend to cause his death we would like to restate the law

1994 TLR p21

that in cases of this nature it is only where it is doubtful on the evidence that an accused intended to A kill or cause grievous harm to the deceased that the Court would give the benefit

of the doubt to the accused and find him guilty, not of murder, but of manslaughter see R v Joseph Byarushengo and another (2) and R v Kibia Arap Serem (3). B
In the present case the evidence of both witnesses, PW2 and PW3 shows that the appellants used a knife and a club in attacking the deceased. The first appellant's utterances to the deceased that he (deceased) would die if he escaped from the burning house amply demonstrated that the appellants wanted the deceased to remain in the house they had set on fire and be burnt to death. Equally the C acts of the third appellant of setting on fire the second house the deceased entered for refuge and his (third appellants') utterances that `they were to finish off the deceased' amply showed that they had formed a positive intention to kill the deceased. D
On the evidence we are far from being persuaded by the learned defence counsel's argument that this was a case of manslaughter. On the totality of the evidence we agree with the learned Trial Judge that the killing of the deceased by the appellants was with malice aforethought. We agree with the learned State Attorney that the appellants were rightly convicted of murder and we accordingly E order that the appeal be dismissed in its entirety.
1994 TLR p21
G
[zRPz]JAIROS SAKUZI v MCHEMWA MNYAMBUYU 1994 TLR 21 (HC)

Court High Court of Tanzania - Dodoma
Judge Maina J

CRIMINAL APPEAL NO. 19 OF 1990 H
19 May, 1992
Flynote
Criminal practice and procedure - Natural justice - The Right to be heard - Person acquitted by trial court is convicted by appellate court without being heard - Whether proper.
Magistrate's Courts - Appellate jurisdiction of district court - I
1994 TLR p22
A Whether district court as an appellate court may substitute a conviction for an acquittal without hearing the accused - Section 21(1)(b) of the Magistrates' Court Act 1984.
-Headnote
The appellant was acquitted of the charge of cattle theft by the primary court but on appeal the B district court reversed that decision and convicted the appellant of cattle theft and sentenced him to five years imprisonment. No notice for the hearing of the appeal was served on the appellant and the appeal was determined in his absence. He appealed to the High Court.
Held:
C (i) It is a fundamental principle of law that no person shall be condemned unheard; a person acquitted by a trial court cannot be convicted by an appellate court without being given an opportunity to be heard.

(ii) The district court, on appeal, had no jurisdiction to substitute a conviction for acquittal D without first giving the appellant an opportunity to be heard.

Case Information

Conviction quashed and sentence set aside; appeal to the district court to be heard de novo.

No case referred to.

E Rweyongeza, for the appellant.

Mbezi, for the respondent.

Kifunda, state attorney, as amicus curiae.

[zJDz]Judgment

F Maina, J: delivered the following considered judgment of the court:

The appellant was charged in the primary court at Mvumi with cattle theft and he was acquitted. On appeal to the district court at Dodoma, by the respondent who was the original complainant, the decision of the primary court was reversed, and the appellant was convicted of cattle theft as G charged and he was sentenced to five years imprisonment. This appeal is against the conviction.

Mr Rweyongeza, learned counsel for the appellant, argued several grounds of appeal, but I shall base my decision on one ground only, and that is the second ground of appeal. Mr Rweyongeza submitted, H in respect of the second ground of appeal, that the learned district magistrate erred in law in failing to serve a notice on the appellant, and in determining the appeal in the absence of the appellant, without giving the appellant an opportunity to be heard. Learned counsel cited s 21(1)(b) of the Magistrates' Courts Act 1984 which states in part that in the exercise of appellate jurisdiction, the I district court shall have

power to confirm, reverse, amend or vary in any manner, the decision of the primary court, and that, A

`. . . no conviction or conviction and sentence shall be substituted for an acquittal, and no sentence shall be enhanced, unless the accused or convicted person, as the case may be, shall have first been given an opportunity B of being heard'.

It is a fundamental principle of law that no person shall be condemned unheard. A person who has been acquitted by a trial court cannot be convicted by an appellate court without being given an C opportunity of being heard. Since the appellant was acquitted by the primary court, the district court, on appeal, had no power to substitute a conviction for the acquittal without first giving the appellant an opportunity to be heard. The requirement to give such an opportunity to the person who has been acquitted, is mandatory, and not discretionary. The learned district magistrate erred in law in not D giving the appellant the opportunity to be heard. The error is incurable. Mr Mbezi, learned counsel for the respondent, conceded that failure to give to the appellant an opportunity to be heard, was an incurable error in law and Mr Kifunda, learned State Attorney who appeared as amicus curiae, concurred.

For the reasons given, I agree with counsel that the appellant's conviction cannot stand. I quash the conviction and set aside the sentence. As the appellant has served one year and nine months

out of the five years imprisonment, it is, in my view, fair and in the interest of justice that the appeal be re-heard in the district court. Since the appellant has not served a substantial term of the sentence imposed, it is necessary that the appeal be re-heard by the district court.
Having found that the district magistrate erred in law in substituting a conviction for the acquittal, without giving the appellant an opportunity to be heard, I do not consider it is necessary to decide on the other grounds of appeal. The other grounds are based on the evidence, and anything I comment on the evidence will prejudice the magistrate who will hear the appeal in the district court.
The appeal is allowed. The proceedings before the district court are declared a nullity. The conviction is quashed and the sentence is set aside.
It is ordered that the appeal be heard de novo in the district court by another magistrate of competent jurisdiction.
1994 TLR p24
A
[zRPz]ISIDORI STANISLAUS v REPUBLIC 1994 TLR 24 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Nyalali CJ, Omar JJA and Ramadhani JJA

B CRIMINAL APPEAL NO. 187 OF 1991
(Appeal from the conviction of the High Court of Tanzania, at Tabora. Kajeri, PRM Ext Jurisdiction)
Flynote
C Criminal Law - Murder - Defence of provocation.
-Headnote
The appellant was charged and convicted as charged for the offence of murder contrary to s 196 of the Penal Code, Cap 16, and sentenced to death by the High court. On appeal it was contended that the trial Court erred in law by refusing to accept the appellant's plea of provocation.
D Held: No provocation in law was established and the conviction and sentence were properly arrived at by the trial court.
Case Information
Appeal dismissed.
Cases referred to:
E (1) Yovan v Uganda, [1970] EA 405.
(2) Katemi s/o Ndaki v R [1992] TLR 297.
Mr Nasimire, for the appellant.
Mr Mapunda, for the Republic.
[zJDz]Judgment
F Nyalali CJ: delivered the following considered judgment of the court:

The appellant, Isidori Stanislaus was convicted as charged for the offence of murder contrary to s 196 of the Penal Code and was given the mandatory sentence of death by hanging by the High Court G at Tabora (Kajeri, PRM with extended jurisdiction). He was aggrieved by the conviction and sentence, hence this appeal to this Court. In this appeal Mr Nasimire, learned advocate, represented the appellant, whereas Mr Mapunda, learned attorney, represented the respondent, Republic. Two H memoranda of appeal were filed, the first one by the appellant himself and the second one, subsequently by Mr Nasimire. All the grounds of appeal boil down to the complaint that the trial Principal Resident Magistrate (with extended jurisdiction) erred in holding that the appellant acted I without legal provocation in killing the deceased in this case. Mr Mapunda, on behalf of the Republic, supports the decision of the trial court.

1994 TLR p25

NYALALI CJ

From the proceedings both in this court and the trial court it is apparent that there is common ground A on most of the matters relevant to this case. It is common ground that on 14 April 1987, the appellant killed one Nathan s/o Itiel by practically decapitating him with a panga in appellant's shamba, at Kibanga village, Kasulu district. Prior to the incident, the deceased and his brother, B namely Zakaria s/o Itiel - the first prosecution witness (PW1) - had been staying as guests at the homestead of appellant's father. The appellant lived with his father. Shortly before the incident, the appellant invited the deceased to accompany him to appellant's shamba to help the appellant carry some luggage. Deceased obliged and took his bicycle with him for that purpose. Sometime after they C arrived in the shamba, the appellant struck deceased with a panga at the back of the neck.

It is common ground also that after thus attacking the deceased with the panga, the appellant returned home where he asked PW1 also to accompany him with his own bicycle to the shamba D purportedly to assist in carrying a luggage which had proved to be too heavy to be carried by appellant and PW1's brother. PW1 obliged. Shortly after they arrived in the shamba, the appellant slashed PW1 in the back but PW1 managed to escape serious injury and ran away. Thereafter, the E appellant made a shallow grave in his shamba where he buried the deceased Nathan s/o Itiel and camouflaged it by planting some banana shoots on top of it. Having accomplished that, the appellant returned home. Appellant, however, did not stay long at home. PW1 turned up at night and narrated F to appellant's father and relatives what had transpired in appellant's shamba. Anticipating trouble for himself, the appellant disappeared from home and ran away with the bicycle of the deceased.

It is undisputed between the parties to this case that the shallow grave where the deceased was G buried by the appellant was discovered by the villagers after a search was mounted the following morning. The police were informed, and they came to the scene, accompanied by a doctor, several days later. A postmortem examination was conducted on the dead body of the deceased. The appellant was subsequently arrested on 20 April 1987. He was taken before a Justice of the Peace before whom he recorded a confession to killing the deceased.

At his trial he raised the defence of provocation claiming in effect that the deceased and the appellant had been partners in an illicit business of smuggling elephant tusks from Tanzania to Burundi. He

A further asserted that for sometime prior to the fatal incident, the deceased had behaved as if he wanted to cheat on appellant's share of the last transaction. Appellant's suspicions were confirmed when the appellant demanded for his share when the appellant and deceased were in appellant's B shamba on the material day. Deceased flatly refused, saying what amounted to in Kiswahili as:

`Blashara gani dihara yenyene ya niza tena ya magendo na tedha zenyewe nimekwisha tumia na kunywew.'

C This roughly translates into English as saying `What kind of business is this! It amounts to stealing and involves smuggling. Anyhow, I have spent all the money on drinking.'

It is these remarks which the appellant claims provoked him into killing the deceased. The trial court did not accept the story given by the appellant to explain his killing of the deceased and therefore held D that the defence of provocation was not proved. The thrust of the appeal is directed at faulting this finding of the trial court. In the course of hearing this appeal, the court asked the parties to address it on an important point of law, upon which the decision of this appeal turns. This is whether the story E of the appellant, if accepted as true, discloses conduct which amounts to legal provocation. Both sides are in agreement that the answer lies in the provisions of s 202 of the Penal Code, which states:

F `The term "provocation" means and includes, except as hereinafter stated, any wrongful act or insult of such a nature as to be likely, when done to any ordinary person, or in the presence of any ordinary person to another person who is under his immediate care, or to whom he stands in a conjugal, parental, filial or fraternal relation, or in the relation of master and servant, to deprive him of the power of self-control and to induce him to commit an assault of G the kind which the person charged committed upon the person by whom the act or insult is done or offered.

When such act or insult is done or offered by the person to another, or in the presence of another to a person who is under the immediate care of that other, or to whom the latter stands in any such relation as aforesaid, the former is H said to give the latter provocation for an assault.

A lawful act is not provocation to any person for an assault.

An act which a person does in consequence of incitement given by another person in order to induce him to do the I act and thereby, to furnish an excuse for committing an assault is not provocation to that other person for an assault.

An arrest which is unlawful is not necessarily provocative for an assault, but it may be evidence of provocation to a A person who knows of the illegality.'

The important issue that arises in this case is whether the alleged refusal by the deceased to pay the proceeds of smuggling, coupled with the words allegedly spoken by him amount to wrongful act or B insult. In the case of Yovan v Uganda (1), the Court of Appeal for East Africa while dealing with similar legal provisions, stated:

`With this in mind we would again shortly summarize the provisions of ss 187 and 188. The essentials as set out in s 188 are that there must be: C

(i) A wrongful act or insult, and as stated in ss (3) it cannot be a lawful act;

(ii) It must be such an act or insult as to deprive an ordinary person of his self-control; D

(iii) and such as to induce him to commit an assault of the kind which he did upon the person offering the insult;

(iv) the assault must be committed on or at least aimed at the person offering the provocation.'

The expression `wrong' or `wrongful' is not specifically defined under the Penal Code or the E Interpretation of Laws and General Clauses Act 1972, chap 1 of the Revised Laws. To our knowledge, these expressions do not appear to have been previously defined judicially within our jurisdiction or elsewhere in our neighbourhood. However, according to Jowitt's Dictionary of English F Law a `wrong' means `the privation of right, and injury; that which takes place when a right is violated or infringed'. Similarly Wharton's Law Lexicon (14th ed) defines a wrong as, `the privation of right, an injury, a designed or known detriment'. The Shorter Oxford English Dictionary defines a G wrong as it relates to law as, `violation, transgression, or infringement of law; invasion of right to the damages or prejudice of another or others'.

We think that the meaning of a `wrong' as articulated above is the correct meaning in the law H applicable in this country. It follows that the conduct of the deceased could amount to provocation in law only if it deprived or violated a right acquired by the appellant under the illicit transaction between them. It is, however, elementary principle that illegal transactions do not give rise to rights recognized by the law of the land. In other words, illegal activities take place outside the protection of the law, and those who partici- I

A pate in such activities do not acquire any rights in respect of which a privation injury, violation or infringement is capable of being committed. The case of Katemi s/o Ndaki (2) decided by this court, did not deal with the provisions of s 202 of the Penal Code in respect of the claim made by the appellant in that case that he had been provoked by being served with a court summons in a matter B already settled out of court.

In the final analysis therefore it is clear that the conduct of the deceased, as disclosed by the story of the appellant, does not amount to legal provocation. Appellant was thus liable to be convicted as C charged. As the sentence imposed is mandatory under the law, this appeal must fail and we dismiss in its entirety.

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[zRPz]JIMMY DAVID NGONYA v NATIONAL INSURANCE CORPORATION LTD 1994 TLR 28 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Bahati J

F MISCELLANEOUS CIVIL CAUSE NO. 74 OF 1991
15 September, 1992
Flynote
Natural justice - The right to be heard - Applicant dismissed from employment by the respondent's Board of G Directors on account of an audit report - Need to show contents of audit report to the appellant before dismissing him.
Natural justice - The rule against bias - General Manager who initiated disciplinary proceedings against the H applicant was present at the board meeting while applicant was absent - Whether the board was biased.
-Headnote
The applicant was dismissed from employment as a branch manager of the respondent corporation. The Board of Directors dismissed him on the basis of an audit report whose contents were never shown to the applicant to enable him to contradict them. When the Board of Directors met to I deliberate on the applicant's case, the General Manager, who had
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initiated the proceedings against the applicant and had commissioned the audit, was present but the A applicant was absent. The applicant applied for certiorari and mandamus arguing that his dismissal was in contravention of the rules of natural justice.
Held:

(i) Since the audit report was prejudicial to the interests of the applicant and it formed the basis of the decision of the Board, it ought to have been shown to the applicant for his comments B and for an opportunity to contradict its contents; failure to do that contravened the right of the applicant to be heard;

(ii) Since the General Manager, who was in the nature of a prosecutor, was present during the deliberations of the Board which dismissed the applicant, the proceedings of the Board C were vitiated by bias.

Case Information
Application granted.
Cases referred to:

(1) Local Government Board v Arlidge [1915] AC 120. D
(2) Board of Education v Rice [1911] AC 179.
(3) The King v Hendon Rural District Council, ex parte Chorley [1933] 2 KB 307.
(4) Cooper v Wilson [1937] 2 KB 307.
(5) R v Barnsley Metropolitan Borough Council, ex parte Hook [1976] 3 All ER 452.

WC Mwakasungula, for the applicant. E
M A Mapunda, for the respondent.
[zJDz]Judgment
Bahati J: This is an application for orders of certiorari and mandamus to remove into this Court and quash the decision of the Board of Directors of the National Insurance Corporation, and to compel F the Board of Directors of the respondent Corporation to reinstate the applicant and thereby direct it to act with fairness.
Mr Mwakasungula, learned counsel for the applicant submitted that the application was for the orders mentioned above and it was supported by an affidavit of the applicant. He went on to state that the G main thrust of the application was that the respondent in determining the fate of the applicant was in breach of the rules of natural justice, namely that a party should not be condemned unheard and that no one should be a judge in his own cause. He elaborated that the Board of Directors in its letter of H 25 July 1991 through the General Manager stated that the applicant had been dismissed because the Board of Directors found him guilty and the finding was according to the audit report. But the audit report from Tanzania Audit Corporation was never presented to the applicant to contradict the findings in it. The applicant was therefore not accorded the I

A opportunity to comment or see the report nor did he appear at the Probe Committee. Mr Mwakasungula submitted that as a branch Manager, the applicant was entitled to know the nature of the investigation at his branch. He argued that the applicant was therefore condemned unheard which was a break of the rules of natural justice. Mr Mwakasungula referred the court to the cases of B Local Government Board v Arlidge (1) and Board of Education v Rice (2) in support of his argument.
The second limb of Mr Mwakazungula's contention was that the Board of Directors when deliberating C upon the case of the applicant was going against the second rule of natural justice in that the Board was a Judge in its own cause. He referred to annexure R2 and continued that since it is the General Manager who initiated the proceedings and commissioned Tanzania Audit Corporation to carry out D investigations at Singida Branch it was wrong for the General Manager and the Management Committee to deliberate the case of the applicant on 25 July 1991 because, he submitted, any decision of the Board of Directors taken in the presence of the General Manager but in the absence of the applicant amounted to the fact that the General Manager and the Management Committee took E part in the deliberations of the Board. Mr Mwakasungula referred to the cases of The King v Hendon Rural District Council ex parte Chorley (3) and Cooper v Wilson (4) and R v Barsnley Metropolitan Borough Council ex parte Hook (5). He submitted that the General Manager and his team were present in the Board Meeting which decided the fate of the applicant and that on the F authorities cited above he was praying for the grant of the application by the Court.
In reply, Dr Mapunda, learned counsel for the respondent, submitted that a charge was served on G the applicant which contained several disciplinary offences. The applicant was given an

opportunity to reply to the charge and he did actually reply. Then on the basis of the charge and reply the Board of Directors commissioned auditors to verify the contradictions between the charge and reply. The auditors submitted their report to the Board and the Board considered the charge, reply and the H auditors' report and decided to dismiss the applicant. Dr Mapunda contended that although the applicant was not given the opportunity to reply to the audit report, the audit did not contain anything new which the applicant was not aware of, and that the report only confirmed allegations in the charge. Dr Mapunda submitted that there was therefore no contravention by the Board of the rules of I natural justice of the right to be heard.

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BAHATI J

With regard to the presence of the General Manager in the Board meeting, Dr Mapunda submitted A that it was true that the General Manager attended the Board meeting of 25 July 1991 but that he was only there as part of the management and did not take any part in the Board's deliberations since he is not a Board member. He said that his presence was only procedural because the management B was always invited in the Board meeting. He submitted that the decision to dismiss the applicant summarily was made by the Board members only. Dr Mapunda, however, conceded that he was aware of the rule that mere presence of an interested party in the absence of the other party would vitiate the proceedings. He said that he had read the authorities cited by his learned friend and that he C was in agreement with them.

In a further reply, Mr Mwakasungula said that according to the minutes of 25 July 1991 the General Manager was present together with his management team when the fate of the applicant was being D discussed but that the minutes were silent as to who took active part in the deliberations. He prayed that the minutes be quashed on the basis that the applicant was not there. Mr Mwakasungula also submitted that the letter of dismissal has two limbs, one concerning the charge and the other concerning the findings of the audit, and this audit report is the one which weighed most on the E Board in coming to the conclusion to dismiss the applicant. He submitted further that if there was nothing new then the Board should have acted on the charge and reply only.

The questions to be answered in this application are mainly two. These are, (1) whether the applicant F was given the opportunity to present his case properly and (2) whether it was in order for the General Manager to attend the Board meeting in the absence of the applicant. With regard to the first question it is my opinion that the applicant was not given an opportunity to present his case in full G before the Board because he was not shown the audit report for him to comment on. Since the audit report formed the basis of the decision of the Board of Directors, it was necessary to serve a copy of the report to the applicant for his comments. Then the comments of the applicant would be taken to the Board so that the Board would then look both at the audit report and the comments of the H applicant. The cases of Board of Education v Rice (2) and Local Government Board v Arlidge (1) cited above are relevant in this case more so because they clearly state that the parties in the controversy should be given a fair opportunity to correct or contradict any relevant statement in any information obtained by a Board I

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BAHATI J

A which is prejudicial to their view. Certainly in this case the audit report was prejudicial to the view of the applicant. It ought to have been given to him for his comments. The Board, therefore, contravened the rule of natural justice namely the right of the applicant to be heard.

B Secondly, with regard to the second question, the Board was again in breach of the rules of natural justice since the Board deliberated on the case of the applicant in the presence of the General Manager who was in the position of a prosecutor. The case of R v Barnsley Metropolitan C Borough Council, ex parte Hook (5) cited by Mr Mwakasungula is relevant. That case held inter alia that `the local authority was in breach of the rules of natural justice since the Committee heard the market manager's evidence in the absence of the applicant or his representative, and the market manager, who was in the position of a prosecutor, had been present at the deliberations of the D committee when it came to its decision'.

It has been stated from the Bar that there is no evidence of any participation in the deliberations of the Board by the General Manager who was not a member of the Board. But the case cited above does not make it necessary that the General Manager should participate in actual fact. It is enough if E he is in the nature of a prosecutor and he is present during the deliberations of the Board.

I agree with the decisions reached in the cases of R v Barnsley Metropolitan Borough Council, ex parte Hook (5) and Local Government Board v Arlidge (1) and Board of Education v Rice (2) cited above. Indeed Dr Mapunda for the respondent said that he too agreed with the decision in R v Barnsley Metropolitan Borough Council (5) which hold that proceedings would be vitiated by F presence of an opposing party.

For the above reasons, I grant this application. I hold that the decision of the Board of Directors was vitiated by a breach of the rules of natural justice. I therefore quash the Board's decision of G dismissing the applicant. The applicant is to be regarded still the employee of the respondent corporation and to have been such employee all the time because the decision to dismiss him has been quashed. I command that the respondent reinstate the applicant forthwith and pay him all his salaries and other benefits because the applicant is and has always been the employee of the H respondent.

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[zRPz]TANZANIA DAIRIES LTD v CHAIRMAN, ARUSHA CONCILIATION BOARD AND ISAACK KIRANGI 1994 TLR 33 (HC)

Court High Court of Tanzania - Arusha

Judge Mroso J

MISCELLANEOUS CIVIL APPLICATION NO. 56 OF 1990 B

18 December, 1992

Flynote

Prerogative orders - Parties to applications for prerogative orders - Whether a private individual may be joined as C a co-respondent in an application for prerogative orders.
Labour law - Limitation of time - Time within which to file a reference to the Labour Conciliation Board or further reference to the Minister - Security of Employment Act 1964 and Law of Limitation Act 1971. D
-Headnote
This was an application for the orders of certiorari and mandamus, made under s 2(2) of the Judicature and Application of Laws Ordinance, Cap 453, and the Law Reform (Fatal Accidents and E Miscellaneous Provisions) Ordinance, Cap 100, as amended by the law reform (Fatal Accidents and Miscellaneous Provisions) Ordinance (Amendment) Act 1968, and s 95 of the Civil Procedure Code, 1966. The second respondent was dismissed from employment as senior accountant by a letter of 22 March 1988, and he referred the matter to the Conciliation Board on 22 June 1989, far beyond the F 14 day limit set by s 23(2) of the Security of Employment Act, Cap 574, as amended by Act No 1 of 1975. The Board proceeded to hear the reference despite the limitation of time. The applicant obtained leave of this court to apply for the orders of certiorari and mandamus against the Chairman, Arusha Conciliation Board and one Issack Kirangi, first and second respondents respectively. G Amongst the issues was whether it was proper to join an individual, the second respondent, in an application of this nature.
Held:
(i) In the absence of clear authority to the contrary, the applicant could validly join Isaack Kirungi, a private individual, as a co-respondent; but the prerogative orders, if granted, will H only be directed at the first respondent;
(ii) The Security of Employment Act does not provide that time for filing a reference to the Board or a further reference to the Minister could be extended on application;
(iii) The Law of Limitation Act 1971 applies to appeals and applications I

A made to a court of law only, not otherwise; accordingly, the provisions of that act do not apply to proceedings before the Labour Conciliation Board under the Security of Employment Act;
(iv) Once the law puts a time limit to a cause of action, that limit cannot be waived even if the opposite party desists from raising the issue of limitation;
B (v) The Conciliation Board acted ultra vires when it heard and decided on the reference after the time provided by law had expired.
Case Information
Certiorari and mandamus granted.
Case referred to:
C (1) Assistant Registrar of Buildings v Fredrick G Kibwana, Court of Appeal at Mwanza, Civil appeal No 1/1987 (unreported).
Maro, for the applicant.
Mwaimu, for the respondent.
[zJDz]Judgment

D Mroso J: This is an application for the orders of certiorari and mandamus made under s 2(2) of the Judicature and Application of Laws Ordinance, cap 453 and the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance, cap 100, as amended by the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance (Amendment) Act 1968. Section 95 of the Civil E Procedure Code, 1966 has also been cited in aid. Tanzania Dairies Limited, henceforth to be referred to only as the applicant, obtained leave of this court in Miscellaneous Court Application No 150 of 1990, to apply for the orders of certiorari and mandamus against the Chairman, Arusha F Conciliation Board and an individual, one Isaack Kirangi, henceforth to be referred to as the first and second respondents respectively.

During the hearing of this application the applicant was represented by Mr Mareo, learned counsel G from the Tanzania Legal Corporation, and the first respondent was represented by Mr Mwaimu, learned State Attorney. The second respondent fended for himself. I raised the question whether it was proper to join an individual, one Isaack Kirangi, as a respondent in an application of this nature. The Arusha Region (Labour) Conciliation Board had given an award in favour of Mr Kirangi whereby H the applicant was ordered to reinstate him in its employ.

Mr Maro argued that it was thought proper to include Mr Kirangi as a respondent because under Rule 22 of the Crown Office Rules, 1906 which is law in Tanzania by virtue of the reception clause in the Tanganyika Order-in-Council, 1920 which applied the practice and procedure obtaining in England on I 22 July 1920,

persons affected by proceedings may show cause. That means, according to Mr Maro, that any A party affected by proceedings in a court or tribunal could be made a party in an application for the prerogative orders. The second respondent being a party who would be affected by the present proceedings was thought to be a proper party to be joined as a respondent. B

Mr Mwaimu held the view that the second respondent should not have been made a party because the orders of certiorari and mandamus cannot be directed to a private individual. He did not cite any authority in support of that view. The second respondent himself, being a layman, said he was not in a position to argue whether or not he had locus standi in these proceedings. C

On reflection, and in the absence of clear authority to the contrary, I think the applicant could validly join Isaack Kirangi as a second respondent, even though, if the court grants the orders applied, they can only be directed at the first respondent. I have come to hold this view because, according to D Halsbury's Laws of England, 1989 ed at 110, if an order nisi to an application for mandamus, for example, is given (I take this to be the equivalent of an order for leave to apply for the order of mandamus), `then notice has to be given to every person who, by the affidavits on which the order is moved, appears to be interested in or likely to be affected by the proceedings, and to any person E who, in the opinion of the court or judge, ought to have such notice'. The phrase `every person' does not appear to be restricted to the one to whom the court order would be directed but to any one `who appears to be interested in or is likely to be affected by the proceedings'. There can be no doubt that F the second respondent is a person interested in and who is likely to be affected by the orders sought, if they are granted. The first

respondent, of course, is the correct party, being a kind of tribunal which exercises statutory powers of a public nature. Now, then, to the merits or otherwise of the application. G

The applicant summarily dismissed the second respondent on the ground that, when called upon to do so, he failed to produce to the employer originals of certificates which would verify his qualification for the post of senior accountant which had been offered to him. The second respondent, acting H under provisions of the Security of Employment Act, cap 574, made a successful reference to the Arusha Regional Conciliation Board, which ordered his reinstatement. Because of non-compliance with certain requirements under the Security of Employment Act, the applicant could not appeal the Conciliation Board award, but believing the Board acted ultra vir- I

1994 TLR p36

MROSO J

A es in hearing the reference beyond the requisite period of limitation, applied to this court for the orders of certiorari and mandamus to remove the proceedings in the Board and quash them.

The second respondent was dismissed from employment as senior accountant by a letter of 22 B March 1988. The reference to the Conciliation Board was filed on 2 June 1989, a year and three months after the dismissal. But s 23(2) of the Security of Employment Act, cap 574, as amended by Act 1 of 1975, requires that the reference to the Board was to be made within 14 days of dismissal. There has not been any serious dispute that the reference was filed well after the time limited by law. C Indeed, the Board was aware of it but proceeded to hear the reference. Although the applicant claims it protested against the hearing of the reference on the ground that it was time barred, that is not apparent from the copy of proceedings of the Board which the applicant filed in this court as an annexure to the application.

D It has been argued before me that there is a lacuna in the Security of Employment Act, cap 574 in as much as it is not provided therein that time to file a reference to the Board or a further reference to the Minister could be extended on application.

E It is true indeed that there is no provision in cap 574 for extension of time to file a reference to the Board or a further reference to the Minister.

Mr Maro, on the other hand, has argued that there is no lacuna in the law. He submits however that F ss 14 and 46 of the Law of Limitation Act 1971 provide sufficient remedy. Section 14 provides -

`14(1) Notwithstanding the provisions of this Act, the court may, for any reasonable or sufficient cause, extend the G period of limitation for the institution of an appeal or an application, other than an application for the execution of a decree, and an application for such extension may be made either before or after the expiry of the period of limitation prescribed or such an appeal or application.

(2) For the purposes of this section "the court" means the court having jurisdiction to entertain the appeal or, as the H case may be, the application.'

Section 46 provides -

`46. Where a period of limitation for any proceeding is prescribed by any other written law, then, unless the contrary I intention appears in such written law, and subject to the provisions of s 43, the provisions

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MROSO J

of this Act shall apply as if such period of limitation had been prescribed by this Act.' A Section 43 excludes certain proceedings from the application of the provisions of the Law of Limitation Act. These are criminal proceedings, applications and appeals to the Court of Appeal for B East Africa (now presumably the Court of Appeal of Tanzania) certain proceedings by the Government, forfeiture proceedings under the East African Customs and Transfer Tax (Management) Act 1952, proceedings in respect of forfeiture of a ship or an aircraft and any proceedings for which a period of limitation is prescribed by any other written law, save to the extent provided for in s 46. C

After considerable thought, I have come to the view that the provisions of the Limitation Act 1971 apply only to appeals and applications made to a court of law. In s 14(1) of the Limitation Act, for example, reference is made to court. The Act itself does not define the term and one has to look at D the definition of the term in the Interpretation of Laws and General Clauses Act 30 of 1972. There `Court' is defined as `any court of Tanganyika of competent jurisdiction'. Even the term `proceeding' in s 46 refers and is restricted to a court proceeding. A definition of the term as used in the Law of E Limitation Act means `a suit, an appeal or an application and includes proceedings under customary law'. I hold, therefore, that the provisions of the Limitation Act 1971 do not apply to proceedings in a Regional Conciliation Board under the Security of Employment Act, cap 574. It would follows that the F Act having fixed the time within which a reference may be made to the Conciliation Board is deficient in not providing for a means of obtaining enlargement of time in case of a delay for which there is sufficient cause.

Was the Conciliation Board entitled to disregard the fact that the reference was time-barred? I think G that once the law puts a time limit to a cause of action, such action cannot be accepted and adjudicated upon after the limitation period has expired. The bar of time cannot be waived so that even if the party for the opposite side desists from raising limitation as a defence the court or tribunal before which the action is brought has no option but to dismiss it. I think, therefore, that the H Conciliation Board acted ultra vires when it heard and decided on the reference after the time provided by law had expired. Perhaps the legislature should revisit the Act to provide for a procedure for seeking and obtaining extension of time.

The question I have now to consider is whether I should quash the Board's award. I

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MROSO J

A The orders of certiorari and mandamus, among other prerogative orders, are discretionary and this court may refuse to grant them even where the right has been established.

Traditionally the order of certiorari was directed against judicial or quasi-judicial acts only. But, as B was held in Assistant Registrar of Buildings v Fredrick G Kibwana (1), Mustafa JA said -

`An order for certiorari would lie from the High Court to an inferior court or tribunal of a judicial, quasi-judicial or even an administrative nature. The body would be a statutory or some sort of such authority such as a licensing or C municipal or disciplinary body. It would be a body of person or persons having legal authority to determine questions affecting the rights of subjects.'

A Regional (Labour) Conciliation Board is a quasi-judicial body and would be subject to the D supervisory power of the High Court.

As Mustafa JA also said in the case cited (supra) -

`If such a body acts in excess of jurisdiction or fails to observe the rules of natural justice or there is a palpable error E on the face of it, then an order would issue.'

I think that in disregarding the fact that the reference was time-barred, the Board had committed a palpable error which went to jurisdiction.

F It has been argued by Counsel for the first respondent that the applicant company itself disregarded procedural requirements in the manner it proceeded to dismiss the second respondent and, therefore, that this court should not exercise its discretion to grant the orders for which it applied. I accept this argument in part. I shall not order payment of costs to the applicant. But I shall G grant the orders of certiorari and mandamus by ordering the proceedings in the Conciliation Board to be brought up and to be quashed. I have come to this conclusion because I am aware of a growing trend in this country by various authorities to disregard legal requirements which are thought to be inconvenient or inexpedient.

H Although it may have been thought benevolent for the Board to disregard the question of time limitation, that was in any case bad discipline and I think courts of law should not give blessing to such a trend. The orders shall issue as prayed, and there will be no order for costs.

1994 TLR p39

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[zRPz]GERVAS KILONGOZI v REPUBLIC 1994 TLR 39 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Omar JJA, Mnzavas JJA and Lubuva JJA

CRIMINAL APPEAL NO. 141 OF 1993 B

25 March, 1993

(From the conviction and sentence of the High Court of Tanzania at Moroqoro Kyando, J) C

Flynote

Evidence - Confession - Admissibility - Confession to a police officer of unknown rank - whether admissible - sections 27(1) and 3 of the Evidence Act, 1967.

-Headnote

The appellant was charged with and convicted of murder. The trial court based the conviction on a D confession which the appellant made to a police officer whose rank was not shown on the evidence. On appeal the conviction was challenged as being based on inadmissible evidence.

Held:

(i) We are satisfied that there is nothing to show that the police officer to whom the appellant E made the confession was of the rank required under s 3 of the Evidence Act, 1967;

(ii) In the circumstances the confession was inadmissible in evidence;

(iii) The prosecution has not proved its case beyond reasonable doubt.

Case Information

Appeal allowed.

No case referred to. F

JI Rutabingwa, for the appellant.

M Kamba, for the respondent.

[zJDz]Judgment

Omar, JA, delivered the following considered judgment of the court: G

The appellant Gervas Kilongozi was charged with and convicted of murder c/s 196 of the Penal Code.

The prosecution evidence is very scanty and mostly hearsay. PW2, Assistant Inspector Elias Madata of Mang'ula Police Station, was awakened at night and informed that there was an injured person at H the police station. He went there and found one Michael Mkalawa had been injured on the head. He gave him a PF3 to take to hospital. He also directed one Detective Corporal Jafari to take down his statement. In this statement Mkalawa said that the appel- I

A lant went to his house at night and knocked, when he opened the door he was attacked but he managed to escape, but he feared for the girl who was living in his house because he, Mkalawa, saw the attacker entering her room. So PW2 took a militiaman one Adriano Mkiwa and a ten cell leader B Simon Peter, also Abdu Mshinde and Sadon Mwinyikaule, these last two are relatives of the deceased Mariam Theophil and Mkalawa. Outside the house of Mkalawa they found Mariam lying face downwards with a head injury; she was already dead. The child of the deceased Zamoyoni Lucas appeared from inside the house and told PW2 that his mother was killed by his stepfather C Gervas Kilongozi the appellant. Mkalawa has not given evidence because he died before hearing of this case. The daughter of the deceased also did not give evidence because she was too young to understand the nature of oath and the truth and falsehood of evidence. The learned Trial Judge D disqualified her from giving evidence. The rest of the people who went with PW2 to the house of Mkalawa were not called to give evidence.

PW3, Aloys Kilongozi, the father of the appellant, was taken from his house on the same night by PW2, Assistant Inspector Madata, and was asked to show him where his son was, so Aloys took E him to a house where a person called Majengo accommodated his son the appellant. The appellant was found in this house and he was taken to the police station with his father PW3 and were locked in. The following morning both were taken out of the lockup. PW3, the father of the appellant, was F informed by PW2 that his son had killed a woman. Then they were put in custody again. The third day they were transferred to Ifakara Police Station where the

appellant was interrogated and according to PW3's evidence appellant admitted killing his fiancee. PW3 remembered standing surety for the appellant in a case in which he was charged for assaulting his fiancee and on Thursday the fiancee went to the Court and complained that he was a threat to her and wanted his G bail cancelled. PW3 wanted to withdraw himself as a surety but the Court refused this request and the same night Inspector Madata went to his house asking him to show where his son the appellant was as he was wanted for the killing. When PW3 was cross-examined by one of the assessors he H said:

`Accused confessed to me and very voluntarily and clearly that he had killed. He so confessed while we were only three, himself, the Incharge CID and myself. He confessed that he had killed.'

I PW4, Sgt Samoyoni, stated that he was stationed at Mang'ula

Police Station, Kilombero District and that he knew earlier of the case of the appellant when he A assaulted the same deceased and a case file was opened on 14 February 1989 and he was granted bail by the Primary Court while on bail, the victim of the attack Mariam Theophil went to court and complained that the appellant was going to her house to threaten her. She asked for cancellation of his bail. PW3, Aloys Kilongozi, was appellant's surety. On 18 February 1989 he (PW4) reported for B work at the police station only to find that the same person had been arrested for killing Mariam Theophil.

The appellant in his defence admitted to have told one junior Police Officer Raphael that he had assaulted deceased at a pombe club. He went on to say that his confession was after he had been C beaten with a club several times and was even told by Raphael that a person had died during interrogation. So he had to admit the offence of assault to save himself from further torture. His father PW3, the appellant said, was with him in the lockup and he cooked up this story of his son D confessing to the murder of Mariam merely to be released from custody. And he was actually released. The appellant denied injuring Mkalawa nor did he know that Mariam was living in Mkalawa's house because they had separated for quite sometime. As for wanting his bail to be cancelled that was merely because she was unhappy with his release from custody. He concluded by saying that E she wanted to see him in prison rather than a free man.

Mr Rutabingwa, learned counsel for the appellant, submitted that the evidence adduced by the prosecution in support of the charge against the appellant was insufficient. He said that the whole F case against the appellant was wholly based on the confession of the appellant to a police officer whose rank is not shown on the evidence. He submitted further that while s 27(1) of the Evidence Act 1967 provides for the confession voluntarily made to a police officer by an accused person, there was no evidence to show that the police officer involved was of the rank required under s 3 of the G Evidence Act 1967. For that reason, Mr Rutabingwa submitted that the validity of the confession was doubtful. Secondly, Mr Rutabingwa argued that as the witness who was present at the time when the appellant made the confession to PW3 did not give evidence in court the evidence of PW3 is H suspect. Thirdly, Mr Rutabingwa submitted that since the only person present during the killing was a child of tender age, who was disqualified

by the court from giving evidence, there is no evidence to support that of PW3. He urged the court to allow the appeal.

Mr Kamba, learned State Attorney for the Republic, respondent I

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OMAR JA

A did not seek to support the conviction for the following reasons: Firstly, one of the witnesses who witnessed the incident was disqualified to give evidence because of his tender age and the other one (Mkgalawa) had died. Secondly, Mr Kamba submitted that there were serious irregularities pertaining to the confession of the appellant to the police officer. The police officer concerned did not come to B testify and that it is not certain as to the rank of the police officer. Mr Kamba submitted that the whole case had no leg to stand on. For these reasons, he did not support the conviction.

We have examined the submissions by both the learned counsel very closely. With respect, we are C in agreement with the submission of the learned counsel for the appellant and the learned State Attorney for the Republic that the case against the appellant was entirely based on the confession of the appellant to the police. Upon close examination of the evidence, we accept the submission of the D Counsel that the confession is fraught with very serious discrepancies. The confession does not in our view comply with the provisions of s 27 and s 3 of the Evidence Act 1967. These provisions provide:

E `27(1) A confession voluntarily made to a police officer by a person accused of an offence may be proved as against that person.

(2) . . .

(3) . . .

Section 3:

F "`Police Officer" means any member of the Police Force of or above the rank of Corporal.'

From the evidence, we are satisfied that there is nothing to show that the police officer to whom the appellant made the confession was of the rank required under s 3 of the Evidence Act 1967. The G officer may well be of the rank below Corporal in which case, the confession would not be admissible. It is therefore, a confession which, in the circumstances, is not admissible under the law. If the police officer involved had given evidence in Court, the position would have been clarified. This was not done in this case. Consequently, we are in agreement with the learned counsel that the H prosecution case still left much to be desired.

In the result we find that the prosecution has not proved its case beyond reasonable doubt. We allow the appeal and order that the appellant be released from custody forthwith unless he is otherwise I lawfully held.

1994 TLR p43

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[zRPz]AGRO INDUSTRIES LTD v ATTORNEY GENERAL 1994 TLR 43 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Makame JJA, Ramadhani JJA and Mfalila JJA

CIVIL APPEAL NO. 34 OF 1990 B
23 April, 1993
(From the decision of the High Court of Tanzania at Dar es Salaam, Mapiqano, J) C
Flynote
Civil Practice and Procedure - Issues for determination by the Court - Issues not at all pleaded but the court allows parties to address it them - whether the court should make a determination on them.
Land Law - Revocation of a Right of Occupancy - Notice of intention to revoke a right of occupancy - Essence and purpose thereof D
Land law - Revocation of a Right of Occupancy in the Public Interest - Revocation made in order to protect a trespassing parastatal - Whether it is revocation in the Public Interest - Section 10(2) of the Land Ordinance. E
-Headnote
Two farms were mortgaged to a bank. Fifteen years later the mortgagor had absconded, and the debt was unpaid. The bank sold the farms to the appellant who was then given offers of rights to occupancy. Subsequently, rights of occupancy in respect of the same farms were given to another company, thereby occassioning a double allocation. The right of occupancy offered to the appellant F was then purportedly cancelled in order to protect the interests of the second grantee, a parastatal company. The appellant filed a case in the High Court, to challenge the cancellation, and lost. On appeal to the Court of Appeal:
Held:

(i) When a trial court allows parties to address it on any issues, the court must conclusively G determine those issues, notwithstanding that the issues were not in the pleadings;

(ii) The whole purpose of issuing a notice to revoke a right of occupancy is to afford a party an opportunity to put up a case against the proposed revocation; the appellant in this case was H afforded that opportunity through the meeting in the Prime Minister's office on 29 August 1985;

(iii) The decision to revoke the right of occupancy was made by the President when he wrote `Nakubali', that is `I agree', to the minute sent to him recommending revocation, and what I the Minister subsequently did was not to revoke himself but merely to signify the revocation made by the President; there was, therefore, no delegation
1994 TLR p44
A or usurpation of the powers of the President.

(iv) The Kilosa District Authorities had no power to allocate the two farms in dispute in this case, or to grant any rights over them, to Darbrew;

(v) In the eyes of the law a trespasser is a trespasser, be it a public enterprise, a private B enterprise or an individual; public interest requires that legal property rights should be

protected against trespassers and the revocation of the rights of occupancy in this case was done to protect the interests of a trespassing public enterprise and therefore it was not done the the public interest.

Case Information

C Appeal allowed.

Cases referred to:

(1) Vidyarthi v Ram Rakha [1957] EA 527.

(2) Odd Jobs v Mubia [1970] EA 476.

(3) Patman Garments Industries Ltd v Tanzania Manufacturers [1981] TLR 303.

D (4) Associated Provincial Picture Houses Ltd v Wednesbury Corporation [1947] 2 All ER 680.

(5) Padfield v Minister of Agriculture Fisheries and Food [1968] 1 All ER 694.

(6) BP Bhatt and Another v Habib Versi Rajani [1958] EA 536.

(7) Hawabai Franjee Petit v Secretary of State for India [1915] 39 BOM 279.

E (8) R v Sussex Confirming Authority, ex p. Tamlin and Sons Brewery (Brighton) Ltd [1937] 4 All ER 106.

Marandu, for the appellant.

F Mrs Ndosi, for the respondent.

[zJDz]Judgment

Ramadhani, JA, delivered the considered judgment of the court:

This is an appeal by Agro Industries Ltd, the appellant, against the ruling of Mapigano J who upheld the revocation by the President of the United Republic of Tanzania of the rights of occupancy which G were granted to the appellant and refused the prayer to quash the revocation order.

Two farms, conveniently known as farms No 6 and No 7, are situated in Msowero Village, Kilosa District of Morogoro Region. These belonged to one Akberali Abdulrasul Dharamsi who mortgaged H them for a loan of Shs 45,000/= from the National Development Credit Agency, the predecessor of the Tanzania Rural Development Bank (hereinafter referred to as the Bank). That was in 1968. Until 1983 the debt had not been liquidated and the mortgagor had absconded. So the Bank was, I naturally, keen to sell the farms.

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RAMADHANI JA

Two firms had their eyes on the farms. The appellant company was quick to pursue the legal A channels. As early as February 1983 the appellant company approached the bank for a sale. The Regional Development Director of Morogoro Region gave his consent on 30 July 1983 vide his letter C30/16/65. The appellant company paid a total of Shs 98,880/= being the land rent, and debt and B interest thereon, and capital gains tax. That was on 6 October 1983 and the deeds of title were given on 8 July 1985.

The other firm was Darbrew Ltd. This applied through the Msowero Village Government on 1 November 1983 and were granted the use of the farms on 19 November 1983 vide the letter ref No C KL/1322/172. Darbrew immediately took possession and went into cultivation.

Obviously a dispute blew up and Darbrew Ltd petitioned the President on 13 June 1985. The President referred the matter to the Prime Minister on 6 August 1988. The Prime Minister convened a D meeting on 29 August 1988 which resulted in the recommendations of 2 September 1985 that the rights of occupancy granted to the appellant company be revoked and new ones be granted to Darbrew Ltd. The President gave this consent on 5 September 1985. E

The appellant company was advocated for by Mr Marandu, learned counsel. He prayed for and we granted him leave to adduce additional evidence. The effect of that evidence was to prove that farm No 7 too met the same fate. The revocation order for this farm was produced as exh CAI. F

Mr Marandu filed a memorandum of appeal containing seven grounds of appeal. As for the first ground he attacked the learned Trial Judge for having failed to take into account issues which were not pleaded. These issues were three. Firstly there was the question that the appellant was not given notice of the President's intention to revoke the Rights of Occupancy. Second, that the appellant was G not given an opportunity to be heard. Lastly, whether the Minister for Lands usurped the powers of the President or whether the President had delegated his powers to the Minister.

Mr Marandu pointed out that the learned Trial Judge dealt with those issues but as obiter because `It is now established that evidence and arguments in legal proceedings should be confined to the H pleadings'. The learned Trial Judge cited Vidyarthi v Ram Rakha (1).

Mr Marandu submitted that the learned Trial Judge had erred not to decide those issues since both parties adduced evidence and made submissions on them and the Court allowed that to be done. I

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RAMADHANI JA

A On behalf of the respondent was Mrs Ndosi, learned State Attorney. She did not actually address herself to whether or not the learned Trial Judge should have decided those unpleaded issues. Instead she dealt with the merits of the issues themselves which form the content of the other grounds of appeal.

B Admittedly, the three matters were not pleaded and so contravened the decision of the East African Court of Appeal in Vidyarthi v Ram Rakha (1) supra. However, as properly pointed out by Mr Marandu, both sides dealt with these issues and so, as correctly submitted by Mr Marandu again, the decision of the same Court of Appeal in Odd Jobs v Mubia (2) is pertinent. It was decided therein C that a Court may base its decision on an unpleaded issue if it appears from the course followed at the trial that the issue has been left to the Court for decision.

We are of the opinion that those three issues were left to the Court for its decision. The learned Trial D Judge, however, did not dismiss those issues with a wave of the hand. He discussed them at length and rejected them, thus signifying his findings.

Admittedly, after making those three determinations the learned judge went on the remark that:

E `All that I have stated above are essentially in obiter . . .'

The reason he gave for saying so was that those were unpleaded issues. With respect we think the F learned judge was wrong to have regarded his decisions on the three issues as obiter. So long as he had allowed both counsel to address him on them, then, under the authority of Odd Jobs v Mubira (2) he had to conclusively decide them. Therefore these decisions on the three issues were not obiter and can properly be subjects of this appeal.

G As his second ground of appeal Mr Marandu said that Mapigano J erred in holding that the meeting in the Prime Minister's Office (hereinafter referred to as PMO) amounted to prior notice of the intention of the President to revoke the appellant's right of occupancy. Mr Marandu submitted that at the time of the meeting at PMO the President had not made up his mind either to revoke or not to H revoke. The learned advocate pointed out that even the minutes of that meeting indicate that. So, he argued, the appellant's Managing Director, Mr Kimoi, `could not be expected to anticipate or forestall the President's future state of mind or intentions'. Mr Marandu argued further that as the decision to I revoke the rights of occupancy was made after that meeting then the President was

duty-bound to give the appellant company a notice of his intention. The learned counsel referred us to A Patman Garments Industries Ltd v Tanzania Manufacturers (3) at 309.

In reply Mrs Ndosi said that the Director of Land Development Services, Mr Mtetewaunga (PW2), had written a letter on 5 July 1984 to the Regional Land Officer, Monogoro, suggesting revocation. That B letter, Mrs Ndosi pointed out, does not show that it was copied to the appellant company but nevertheless the appellant responded to it on 4 August 1984 and so, she argued, they must have had notice of it.

What Mrs Ndosi submitted is true. There was the letter, exh A7 from PW2 suggesting revocation and C that was contested by the appellant company vide exh A8. However, the same PW2, almost a year later, on 27 May 1985 to be precise, wrote another letter (exh A9) saying that the Minister had ruled that the farms remain with the appellant company and that Darbrew was to be given adequate D land to suit their requirement. So even if there was notice of revocation then that notice was waived so to speak. What we are then left with is the meeting of 29 August 1985.

It is true, as Mr Marandu said, that that meeting was `basically and merely called to discuss a long outstanding dispute between the appellant company and Darbrew Ltd'. But then we ask, after the E discussion what next? Was the discussion an end in itself or was it a means to arriving at a solution to the dispute? It is obvious to us that the Principal Secretary of PMO would not involve himself in an academic exercise. In fact the minutes are in black and white that Mr Kimoi, for the appellant F company, was asked whether they would be prepared to compensate Darbrew if it were decided that the farms continued to be of the appellant company. The same question was put to Darbrew. These two questions clearly showed that there was a possibility of revocation. The minutes (exh A12) go G further to record that the stand of the appellant company was that `hawatakubali shamba lingine badala ya hilo walilokwihapewa "title deed" '. We are left in no shade of doubt that the issue of revocation was made transparent

to the appellant. In our opinion the whole purpose of notice is to afford a party an opportunity to put up a case. The appellant had that. H

We agree with the learned Judge, therefore, that:

`The applicant thus knew, or ought to have known, the consequence which might follow an adverse decision by the authority, namely the revocation of their rights over the two farms.' I

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RAMADHANI JA

A As for the case cited, with respect we find it not relevant to the point at issue but we shall discuss it at the appropriate juncture.

So the second ground of appeal fails.

The third ground of appeal avers that there is no revocation in fact and that the President merely B wrote `Nakubali' to the minute sent to him from PMO. Mr Marandu argued that that was a mere expression of the mind of the President and that he had to actually sign the revocation order to show that he had revoked. Mrs Ndosi said that when the President wrote `Nakubali' to the letter from PMO he signified his decision to revoke the title.

C We cannot resist the thought that this is semantics. PMO was instructed by the President to investigate the dispute and they wrote to him recommending revocation of the title for two reasons which are not necessary to divulge for the time being. Then the President wrote `Nakubali' ie he agreed that the title be revoked. Now we fail to see what Mr Marandu is up to. As far as we are D concerned the manifestation of the mind of the President can take other forms than just personally appending his signature. The endorsement of `Nakubali' that is `I agree' is one of those other forms. This ground too fails.

E Had the President to sign the revocation order personally? Mr Marandu said yes. That was his fourth ground. To him, since the letter from PMO did not suggest to the President that he should direct the Minister for land to revoke, then the word `Nakubali' cannot be taken to signify the F delegation of the Presidential powers to revoke to the Minister. We understood Mr Marandu to be saying that there was no delegation specifically for this revocation order in question.

Mr Marandu did not stop there, he also argued that there could not be a general delegation of these G powers either. He submitted that the powers under s 10(1) of the Land Ordinance are quasi-judicial and discretionary and so in the absence of express statutory provision there can be no delegation. He referred us to Halsbury's Laws of England for that proposition of law. Mr Marandu contended, H therefore, that the order of revocation signed by the Minister is ultra vires.

Mrs Ndosi conceded that there is no instrument delegating the powers of the President of revoking rights of occupancy. However, she submitted that s 2 of the Presidential Affairs Act (cap 502) permits delegation of presidential powers provided there is no contrary intention appearing in the I specific statute which gives the President the powers in question. The learned State Attorney

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RAMADHANI JA
submitted that the Land Ordinance provides no such contrary intention and so, she contended, the A power to revoke is capable of delegation.
To that contention Mr Marandu responded that the provisions of s 2 of the Presidential Affairs Act are circumscribed by the clause in s 10(2) of the Lands Ordinance which says `. . . if in the opinion of the B President . . .'.
It appears to us that Mrs Ndosi agreed with Mr Marandu that there is no delegation of statutory powers without express statutory provisions and that is why she came up with the Presidential Affairs Act. Paragraph 134 of the Halsbury's Laws of England 3rd ed provides: C

`Without statutory authority to do so, statutory powers cannot be assigned. Although such powers may, in general, be exercised by the hands of servants, agents or contractors and, in the case of corporate bodies, must be so exercised, the question whether statutory powers may be delegated in any wider sense than this depends on the D proper construction of the enactment conferring the powers and, in particular, whether that enactment specifically authorise delegation.'

Now there is no provision for delegation in the Land Ordinance and according to Mrs Ndosi there is E no instrument of delegation that has been given. Does s 2 of the Presidential Affairs Act provide for a general delegation of the functions of the President to Ministers? We think not. That section provides:

`2. Where by or under any written law, other than the Constitution . . ., any power, duty or function is conferred or F imposed on, or is vested in, the President, the exercise of such power or the performance of such duty or function by the President may, unless a contrary intention appears, be signified under the hand of a Minister, a junior minister or G a permanent secretary' (emphasis added).

This section merely empowers a Minister to signify `the exercise of such power or the performance of such duty or function by the President'. The section does not authorize a Minister to exercise H power or perform a duty or a function on behalf of the President.
However, in the present situation the Minister for Lands merely signified the exercise of the power of revocation of the rights of occupancy by the President as is provided by the above quoted section. We have already said that we are satisfied that the President actually made up his mind to revoke I when he had minuted
1994 TLR p50
RAMADHANI JA
A `Nakubali'. All that the Minister did was to signify that revocation. In fact just above the signature of the Minister there are these words typed in capital letters: `By command of the President'.
For the sake of completeness, and not that it is essential to this judgment, we wish to comment on B the distinction which Mr Marandu made that the revocation powers of the President are quasi-judicial and not executive. That distinction is no longer relevant. We have decided so in Patman Garments Industries Ltd (3) at 307 and 308. This ground also fails. These was no

delegation C or usurpation of the powers of the President. The Minister signed the revocation order merely signifying the exercise of that power by the President.

The fifth ground of appeal was that Mapigano J erred when he held that the Kilosa District Authorities D allocated the farms in dispute to Darbrew. The learned counsel pointed out that PW2, Mtetewaunga, who was then the Director for Land Development Services, was not aware of such grants. Mr Marandu went further to submit that even assuming that Darbrew were so granted that allocation was null and void since the District Authority had no such capacity. He referred us to Associated Provincial Picture House Ltd v Wednesbury Corporation (4) and Padfield v Minister of E Agriculture (5).

Mrs Ndosi agreed with Mr Marandu and we think there is much weight in that submission. Section 3 of the Land Ordinance has declared the whole of the lands of Tanzania Mainland to be public land. F Then s 4 goes on to vest in the President all public lands and rights over them and that `no title to the occupation and use of any such lands shall be valid without the consent of the President'. Section 9(2) provides further that a certificate of a right of occupancy is valid if signed by the Land Officer on behalf of the President. The Kilosa District Authority did not have such powers to grant any rights G over the two farms to Darbrew or any body.

This ground therefore succeeds.

The sixth ground of appeal is that the learned Trial Judge erred to have found that the revocation of the rights of occupancy granted to the appellant company was in the public interest. Mr Marandu H stated that the recommendations sent to the President were that as Darbrew is a public enterprise then it is in public interest to protect it.

Mr Marandu argued that that reasoning is faulty because first no proof had been adduced to show that Darbrew was a public enterprise and secondly there was abundant evidence that Darbrew was I a trespasser.

Mrs Ndosi replied that Darbrew is a parastatal organisation since the National Development A Corporation (NDC) which is owned by the Government had 55% majority shares. She reiterated that the revocation was in the public interest as the revocation order said so.

We feel that we should not be detained by whether or not Darbrew is a public enterprise. Mr Marandu conceded that GN 55/80 transferred shares in Darbrew from Lonrho to Tanzania Breweries Ltd, a B subsidiary of the NDC. We are satisfied that Darbrew is a public enterprise.

Let us come to the real issue: was the revocation in public interest? Maybe before we address ourselves to that question we have first and foremost to determine what is public interest. C Unfortunately both learned counsel did not assist us in this regard. So we have to depend on our own research and we have to admit there is not all that much.

The phrase `public interest' was discussed by Law J of the High Court of Tanganyika in B P Bhatt D and another v Habib Versi Rajani (6) where he held, according to the head note, that to be `in the public interest . . . it is not sufficient that public interest may benefit indirectly or incidentally, if the primary purpose of the application is to benefit the landlord's interest and not that of the public'. E

The learned judge relied on Hawabai Franjee Petit v Secretary of State for India (7) which dealt with the phrase `public purpose' which to the learned judge means the same as `purpose in the public interest'. In the Indian case it was said: F

`. . . the phrase, whatever else it may mean, must include a purpose, that is to say an aim or object, in which the general interest of the community, as opposed to the particular interest of individuals, is directly and vitally concerned'.

Yet in R v Sussex Confirming Authority, ex p Tamplin and Sons Brewery (Brighton) Ltd (8) at 112 it G was said:

`It is fallacious to say that a condition is not in the public interest, or may not be in the public interest, if it is the case that a great many of those persons who constitute the public are not directly affected by it; and it is equally fallacious to say that a condition cannot be in the public interest if a great many members of the public neither know nor care H anything about it.'

So what do we understand by an action being in the public interest? We think it is so when looked at objectively with impartial I

A eyes the section is primarily and not incidentally in the interest of the public which, depending on the matter at issue, may even comprise the individual or individuals concerned, and it matters not whether the public is aware of it or not.

B With that understanding in mind, let us see what exactly the President decided by saying `Nakubali'. We have no option but to start at the beginning and that is the letter from PMO.

On 26 June 1986 the Principal Secretary to the President wrote to the appellant company (exh A15) saying:

C `Tarehe 2.9.85 Waziri Nkuu aliwasilisha spala hili kwa Rais akishauri Darbrew wamiliki mashamba hayo kwa sababu zifuatazo:

(a) Darbrew tayari wanayamiliki mashamba hayo, walikwisha kuvuna msimu mmoja mwaka jana na hivi sasa wanavuna msimu wa pili, wakati Agro Industries hawajafanya kazi yoyote pale. Walikuwa wanasubiri kwanza D wapate hati ya kumiliki ardhi ili waende Benki kuomba mkopo.

(b) Darbrew ni shirika la umma, kwa hiyo katika mashindano ya kumiliki ardhi baina yao na kampuni ya watu binafsi ya Agro Industries, shirika la umma linastahili kupata ushindi.

Ukiridhika hivyo, iliyobaki ni kufuta hati ya Agro Industries ya kumiliki ardhi hiyo. Uwezo huo Serekali inao E kisheria, na nashuari utumike.'

Then the President wrote `Nakubali'. Thus the President decided to revoke the rights of occupancy of F the appellant company because: One, Darbrew was already in possession of the farms and was cultivating them; and two, Darbrew is a parastatal and that in a bid to the ownership of land a parastatal should be favoured against a private firm.

G But how did Darbrew came into possession? Admittedly they were allowed to occupy the farms by the Village Government on 1 November 1983 because there was a big bush which provided refuge for destructive animals. Darbrew then applied for title on 9 May 1984. So they

were cognizant of the legal position that the Village Government could not give title. Five days later, on 14 May 1984, the H General Manager of Darbrew rang the Land Development Officer of Morogoro saying that the Bank had rescinded its contract to sell the two farms to the appellant company and that the Bank was going to sell them to Darbrew (exh A3). A copy of that letter from the Land Development Officer to the Bank was sent to Darbrew who did not protest their innocence. That was an unabashed lie which I only meant that Darbrew was well aware that

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RAMADHANI JA

the farms were already sold to the appellant who in fact had paid for them as far back as 6 October A 1983.

Admittedly since the consent to the Commissioner for Lands had not been obtained the transaction between the appellant company and the Bank was an inoperative agreement. But then the title remained with the Bank, the mortgagee, it had not passed to the Village Government. So Darbrew B were trespassers and we are satisfied that they knew their status to be so. In the eyes of the law a trespasser is a trespasser be it a public enterprise or a private enterprise or an individual.

So the crucial question is what action is in the public interest: to protect one with a legal title or to C protect a trespasser? What is at stake in the sanctity of a legal right, and particularly right to property, against the use of naked force. Which of the two should be protected in the public interest?

We are satisfied that public interest, as we have stated to understand it, requires that legal property D rights should be protected against trespassers. Except for these two farms in question, it is also in the interest of Darbrew themselves that legal property rights should be respected and protected.

So the revocation which was done in favour of a trespasser and against a lawful owner never be in E the public interest. So the revocation is null and void because s 10(2) of the Land Ordinance provides:

> `Notwithstanding the provisions of ss (1) the President may revoke a right of occupancy if, in his opinion, it is in the F public interest so to do.'

This we are satisfied was not done in the public interest.

Admittedly that subsection provides a subjective test that is: in the opinion of the President. In this G case that opinion was based on the recommendations of PMO which did not describe Darbrew in its true colours that it was a trespasser. In fact the President was misled by `Darbrew tayari wanayamiliki mashamba hayo . . .'. If the President was seized of the full and correct situation he H would not, in our opinion, have used his name to protect a trespasser albeit a public enterprise. He would have been of the opinion that that was not in the public interest.

Lastly there is the issue of compensation. This is straightforward. As already said at the meeting called by PMO both the appellant and Darbrew had agreed to pay compensation to the other party I

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A should it be so decided. Admittedly the revocation order did not say anything about compensation but that does not mean that it was denied. So the applicant should compensate Darbrew for unexhausted improvements.

B This appeal is allowed with costs. The revocation order is quashed. The appellant company still has rights of occupancy over farm 6 and 7 and it shall compensate Darbrew for unexhausted improvements. It is so ordered.

1994 TLR p54

D

[zRPz]OLONYO LEMUNA AND LEKITONI LEMUNA v REPUBLIC 1994 TLR 54 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Ramandhani JJA and Lubuva JJA

E CRIMINAL APPEAL NO. 123 OF 1993

15 November, 1993

F (From the decision of the High Court of Tanzania at Arusha, Munuo, J)

Flynote

Criminal practice and procedure - Right of accused to be heard - Accused persons jump bail and do not appear G in court for hearing shortly before close of the prosecution case - Case proceeds in their absence - Whether conviction proper - ss 226 and 227 of the Criminal Procedure Act 1985.

-Headnote

H The two appellants were jointly charged in the District Court of Monduli with robbery with violence contrary to sections 285 and 286 of the Penal Code. Just before the prosecution closed its case they jumped bail and the rest of the proceedings were conducted in their absence. They were convicted and sentenced in absentia in terms of the provisions of s 227 of the Criminal Procedure Act 1985, and sentenced to 8 years imprisonment and an order of compensation of Shs 60,000/= the worth of I the three goats the subject of the charge. Their appeals to the High Court were dismissed, and their prison sentence was enhanced to fifteen years. On further

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appeal to the Court of Appeal they asserted that, the trial having proceeded in their absence, they A were not given the opportunity to be heard.

Held:

(i) Section 226(2) of the Criminal Procedure Act 1985 makes provision for the court to set aside a conviction entered in the absence of the accused if it is satisfied that the absence was due to causes beyond the control of the accused; this accords to the accused person B an opportunity to be heard;

(ii) Section 227 of the Criminal Procedure Act 1985, which allows the conviction of an accused person in absentia, can only be invoked when an accused person being tried by a subordinate court fails to appear in court for hearing after the close of the prosecution case; C

(iii) Only prior to the close of the prosecution case are the circumstances set out in s 226 of the Criminal Procedure Act 1985 applicable; after the close of the prosecution case, s 226 is inapplicable and s 227 takes over;

(iv) As in this case the appellants absconded before the prosecution closed its case, the trial D court misapplied the provisions of s 227 of the Criminal Procedure Act 1985;

(v) Having misapplied s 227 of the Criminal Procedure Act 1985, justice in this case would be met if the discretionary powers under s 226(2) of the Act were invoked and have the case re-opened. E

Case Information

Proceedings remitted to the trial court.

No case referred to.

Mono, for the respondent.

[zJDz]Judgment

Lubuva, JA delivered the considered opinion of the court: F

The two appellants are brothers. They were jointly charged in the District Court of Monduli with the offence of robbery with violence contrary to ss 285 and 286 of the Penal Code. They were duly arraigned when the trial started on 17 August 1992. When the charge was read over and explained to G them, both of them pleaded not guilty. Just before the prosecution closed its case the appellants jumped bail. The rest of the proceedings in the trial were therefore conducted in their absence. Consequently on 19 February 1993 they were convicted and sentenced in absentia in terms of the H provisions of s 227 of the Criminal Procedure Act 1985. They were sentenced to 8 years imprisonment together with an order of compensation of Shs 60,000/= the worth of the 3 goats, the subject of the charge. On appeal to the High Court (E N Munuo J) against the conviction and sentence, the appeals were dismissed. The sentence of 8 years imprisonment was set aside and substituted therefore a I

A sentence of 15 years imprisonment. They have now appealed to this Court.

In their memorandum of appeal the appellants, as it was in the High Court on first appeal, have raised a number of points of complaint. In our view, the most important ground is the one in which the appellants assert that both the lower courts erred in sustaining the conviction because they were B convicted in absentia. The trial having proceeded in their absence, they were not given the opportunity to be heard. They also raised the question of identification. That they were not properly identified.

C Mr J D Mono, learned Principal State Attorney who appeared for the Republic, respondent sought to support the conviction arguing that this being a second appeal apart from the issue of the appellant's conviction in absentia there was no point of law involved, the appeal on the conviction is devoid of any merit. It should be dismissed. Mr Mono stressed that the question of identification was D a matter of fact which was dealt with by both courts below. It should not be entertained on second appeal.

Mr Mono then advanced further arguments concerning the conviction and sentencing of the E appellants in absentia. He contended that in the circumstances of the case, if this Court is satisfied that the provisions of s 226(2) of the Criminal Procedure Act were not properly invoked by the trial magistrate, the matter should be remitted back to the trial court. In this way, if we understood Mr Mono, the learned Principal State Attorney, the appellants could be heard on their defence if they had F any.

We shall only deal with the ground on the appellant's conviction and sentence in absentia. The determination of this matter hinges on this point. It raises an important legal point of procedure in connection with the administration of criminal justice. On this aspect, it is convenient to set out the G sequence of events as shown from the record. As indicated when the trial started, both the appellants were present in court until sometime when the prosecution were about to close their case, when they jumped bail. On 4 February 1993 when the case was called up for hearing the H Prosecutor applied for an adjournment. Again the record shows that both the appellants were absent that day. The case was adjourned until 11 February 1993 for mention. Arrest warrants were ordered to be issued against the appellants.

On 11 February 1993 when the case was supposed to come up for mention, the record shows that instead, the trial was proceeded with in the absence of the appellants. The record further shows that I the

Public Prosecutor indicated to the court that he had one more witness to call when he said: `I have A got the remaining witness.' As the case had been fixed for mention that day, it was expected that the court would normally fix the next hearing date when, perhaps the accused would have been traced. Instead for no apparent reason the trial was proceeded with.

Detective Constable Linus (PW5) gave evidence for the prosecution. His evidence was formal. He B was the arresting officer. That was the essence of his evidence. With this evidence, the prosecution closed its case. Judgment was to be delivered on 12 February 1992 and the arrest warrant was extended. The judgment was delivered on 19 February 1993 still in the absence of the appellants. In C the judgment, the learned trial magistrate indicates that as the appellants had absconded, the trial was proceeded with under the provisions of s 226 of the Criminal Procedure Act 1985. Acting under the provisions of s 227 of the Criminal Procedure Act 1985 the learned trial magistrate proceeded to D convict and pass sentence against the appellants in absentia wherein it was recorded:

> 'Judgment read in court to the prosecution represented by Ass Insp Malle. Accused person (sic) are at large.'

Three days later (22 February 1993) the record indicated that the first appellent, Olonyo Lemuna, E was brought to the court under arrest. Following from that it appears that the court informed the first appellant of the judgment and sentence that had been handed down on 19 February 1993. It was F done in the following words by the learned magistrate:

> 'I am just pronouncing the sentence to the accused. Also, it shall give him the right of appeal.' G

Otherwise, as for the second appellant, Lekitoni Lemuna, the record does not show when he was arrested to start serving the sentence. However, as pointed out by the learned judge on first appeal, the second appellant was subsequently arrested and committed to the prison to serve the sentence. H This is evident from the requisite Notices and Memorandum of Appeal filed in which both the appellants feature.

With this background information on the sequence of the proceedings of the trial in the absence of the appellants it is convenient at this juncture to examine closely how the matter was dealt with at I

A the High Court. This matter was specifically raised by the appellants in their memoranda of appeal. The learned judge addressed herself to this issue in these words:

"The accused jumped bail so they were convicted in absentia under s 227 of the Criminal Procedure Act 1985. They B were subsequently arrested and committed to prison to serve an eight year sentence which sentence, I note is illegal because the minimum sentence for the offence of robbery is now fifteen years jail.' (Emphasis supplied.)

C With respect, we are of the view that on appeal the learned judge examined sufficiently the evidence on identity and the propriety of the sentence imposed. On this she properly directed herself and reached a sound conclusion. But the question of the legality or otherwise of the procedure followed at the trial resulting in the conviction and sentencing of the accused in absentia was not D unfortunately look into beyond the extent explained above.

Now we turn specifically to the provisions of s 227 of the Criminal Procedure Act 1985. The issue is whether in the circumstances of the case as set out, the provisions of this section were properly invoked? In order to appreciate the import of this section, it is important to set it out in full starting with E s 226 both of which have to be read together.

Section 226 reads:

F '226(1) If at the time or place to which the hearing or further hearing shall be adjourned, the accused person shall not appear before the court which shall have made the order of adjournment, it shall be lawful for such court to proceed with the hearing or further hearing as if the accused were present and if the complainant shall not appear, the court may dismiss the charge and acquit the accused with or without costs as the court shall think fit.

G (2) If the court convicts the accused person in his absence it may set aside such conviction upon being satisfied that his absence was from causes over which he had no control, and that he had a probable defence on the merit. (Emphasis supplied.)

(3) . . .

H (4) The court, in its discretion, may refrain from convicting the accused in his absence, and in every such case the court shall issue a warrant for the apprehension of the accused person and cause him to be brought before the court.'

And s 227 of the Criminal Procedure Act 1985 provides:

I '217. Where in any case to which s 226 does not apply, an accused

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being tried by a subordinate court fails to appear on the date fixed for the continuation of the hearing after the close A of the prosecution case or on the date fixed for the passing of a sentence, the court may, if it is satisfied that the accused's attendance cannot be secured without undue delay or expense, proceed to dispose of the case in accordance with the provisions of s 231 as if the accused being present, has failed to make any statement or B adduce any further evidence, in relation to any sentence which the court may pass; save that:

(a) where the accused so fails to appear but his advocate appears, the advocate shall subject to the provisions of this Act, be entitled to call any defence witness and to address the court as if the accused has been or is C convicted, and the advocate shall be entitled to call any witness and to address the court on matters relevant to any sentence which the court may pass; and

(b) where the accused appears on any subsequent date to which the proceedings have been adjourned, the proceedings under this section on the day or days on which the accused was absent shall not be invalid by D reason only of his absence.'

As s 231 of the Criminal Procedure Act 1985 provides for the defence of an accused person, it is important to set it out here. It reads: E

'231(1) At the close of the evidence in support of the charge, if it appears to the court that a case is made against the accused person sufficiently to require him to make a defence either in relation to the offence with which he is charged or in relation to any other offence of which under the provisions of s 312-321 inclusive of this Act, he is liable F to be convicted, the court shall again explain inclusive substance of the charge to the accused and inform him of his right.

(a) to give evidence whether or not on oath or affirmation on his own behalf, G

(b) to call witnesses in his defence; and shall then ask the accused person or his advocate, if it is intended to exercise any of the above rights and shall record the answer etc.'

These are very clear provisions governing criminal proceedings. The importance of trial courts to H strictly comply with laid down rules of procedure need not be overemphasized. They are the basic guidelines in the process of administering justice in courts. In our view, in order for the courts to apply these rules properly, firstly, it is necessary to have a clear understanding of such provisions and the rationale behind them. Secondly, the rules must be looked into within the whole context and I not singly. If a particular rule of procedure is

A considered in isolation, there is the danger of applying such a rule in circumstances which are otherwise inappropriate.

In the instant case, the above cited rules of procedure laid down under the Criminal Procedure Act 1985 have to be read together in order to determine at what stage an accused person can be B convicted and sentenced in absentia. In our understanding, various provisions of the Criminal Procedure Act 1985 as set out above, were among other reasons aimed at speeding up trials. For instance the non-appearance of the accused persons on the dates fixed for the hearing of the case due to reasons which could otherwise be avoided accounts for further delays in the disposal of C

cases. In order to minimize delays of this kind, sections 226 and 227 of the Criminal Procedure Act 1985 were enacted. However, in doing so, the cardinal principle of affording opportunity to the parties D to be heard is not to be overlooked. For that reason, s 226(2) makes provision for the court to set aside a conviction of a person sentenced in absentia once the court is satisfied that the absence was due to causes beyond the control of the accused. This accords to the accused person an opportunity to be heard in defence against the prosecution case made against him. It must be made E quite clear that only prior to the close of the prosecution case, in circumstances set out therein, s 226 of the Criminal Procedure Act 1985 is applicable. Beyond that stage this section is inapplicable from where s 227 takes over. In the instant case, we are convinced that the trial magistrate was confused in the application of both ss 226 and 227 when he proceeded with the case under s 226 but F ended up by invoking s 227 in sentencing. These sections cover two different situations.

As already demonstrated in the present case, the appellants absconded at the stage of the G proceedings when the prosecution had not closed their case. The evidence of the arresting officer (PW4) was taken when the appellants were at large. Then the prosecution case was closed and the judgment was handed down purportedly under the provisions of s 227 of the Criminal Procedure Act 1985. The question arises as to whether this section was properly applied at the stage of the case H reached. To our mind, the operative words of this section are clear. That the section can only be invoked when and accused person being tried by a subordinate court fails to appear in court on the date fixed for the continuation of the hearing after the close of the prosecution case or the date fixed for the passing of a sentence. In this case, this stage had not been reached as the case for the I prosecution had not been closed. We are of the settled view that

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the general spirit behind the provisions of s 227 read together with s 231 and ss 312 to 321 is to deal A with the proceedings which have reached the stage beyond the close of the evidence in support of the prosecution case. In the result on a close scrutiny of the general scheme and objective of these provisions of the Criminal Procedure Act 1985, we are satisfied that the trial magistrate misapplied B the provisions of s 227. The circumstances of the case and the stage reached in the proceedings are not, in our view those envisaged for the application of this section. Unfortunately, the learned judge on appeal to the High Court, fell into the same error.

Having taken the view that s 227 of the Criminal Procedure Act 1985 was misapplied, what should be C done next in this case? In order to resolve this matter, we have addressed ourselves seriously on the rationale behind the provisions of s 226. It is our understanding that unlike s 227 which covers proceedings from the stage after the close of the prosecution case, s 226(2) enables proceedings D which were proceeded with to conviction from the stage before the close of the prosecution to be reopened if the court is satisfied that the accused's absence was justified. In these circumstances we are satisfied that the justice of the case would be met if the discretionary powers under the provisions of subclause 2 of s 226 of the Criminal procedure Act 1985 were invoked. That is to have E the case re-opened in terms of the provisions of this

section whereby if the court is satisfied that the appellant had justifiable reasons for his absence it could hear his (appellant) defence. The right to be heard is a cornerstone principle of justice. The appellants should have been afforded that F opportunity. Then on the basis of such defence and the evidence of the prosecution already at hand, judgment could be delivered. On this we are in agreement with Mr Mono, learned Principal State Attorney who argued us to render the matter back to the trial Court if s 227 was wrongly applied. G

Consequently, for these reasons the appeal is allowed to the extent explained. In terms of Rule 36 of the Tanzania Court of Appeal Rules 1979 the proceedings are remitted to the trial Court with direction to deal with the matter in compliance with the provisions of subclause (2) of s 226 of the Criminal Procedure Act 1985. H

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[zRPz]STEPHANO NDAGIZI AND JAMANNE SAID v REPUBLIC 1994 TLR 62 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Ramadhani JJA, Mnzavas JJA and Lubuva JJA

B CRIMINAL APPEAL NO. 24 OF 1992

13 December, 1993

C (From the judgment of the High Court of Tanzania at Dar es Salaam, Lugakingira, J)

Flynote

Criminal Practice and Procedure - Charges - Robbery with violence and armed robbery - Two distinct offences D attracting distinct punishments.

Criminal Practice and Procedure - Cognate offences and substituted conviction - Armed robbery and robbery with E violence - Whether a conviction for armed robbery may be substituted for robbery with violence.

-Headnote

The house of one Ramadhani Hassani was broken into and some items stolen therefrom on account of which the two appellants were convicted by the District Court of Ilala of the offence of robbery with violence contrary to ss 285 and 286 of the Penal Code. Their appeal to the High Court of Tanzania F failed. On further appeal they claimed they did not commit armed robbery so their punishment should have been fifteen and not thirty years.

Held:

(i) The charge confronting the appellants was robbery with violence contrary to s 285 of the penal code, not armed robbery contrary to ss 285 and 286; these are two distinct offences with two distinct punishments

G (ii) Armed robbery, punishable with a minimum sentence of thirty years' imprisonment, is a more serious offence than robbery with violence, punishable with a minimum sentence of fifteen years' imprisonment; a conviction for armed robbery therefore, could not be legally substituted for robbery with violence;

H (iii) For a sentence of thirty years' imprisonment to be imposed, the charge must be armed robbery.

Case Information

Appeal against conviction dismissed; appeal against sentence allowed.

Cases referred to:

I (1) Leonard Raphael and Another v Republic Court of Appeal, Criminal Appeal No 4 of 1992 (unreported).

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(2) John Joseph Onenge and Another v Republic [1993] TLR 131. A

Sengwaji, for the respondent.

[zJDz]Judgment

Ramadhani, JA, delivered the following considered judgment of the court.

On the night of 14 September 1990 the house of one Ramadhani Hassani (PW1) was broken into B and some items of property belonging to him were stolen. The two appellants, Stephano Ndagizi and Jumanne Said, were identified by PW1, his wife, Zena Saidi (PW2), their tenant, Rajabu Mkwanyu C (PW5) and by their neighbour, Manoto Sylvester (PW3), to have been the offenders. So the two appellants were convicted by the District Court of Ilala at Kivukoni of the offence of robbery with violence contrary to ss 285 and 286 of the Penal Code. The appellants were sentenced to a term of imprisonment of thirty years each. D

They appealed to the High Court of Tanzania at Dar es Salaam (Lugakingira J) but they were unsuccessful. This is their second appeal and hence we shall deal with points of law only.

The appellants appeared in person but the respondent was represented by Mr Sengwaji, learned E State Attorney. The appellants had only one point of law in their six grounds of appeal. However, that one point is really crucial though it has not been properly articulated. In their ground number three, the appellants have complained against excessive punishment. They have pointed out `thirty years imprisonment is a corporal punishment (sic) which is imposed for only in the offence of armed F robbery, not robbery with violence'. Admittedly the language is broken but the message is clear. They argue that there are two offences: armed robbery and robbery with violence and that the minimum punishment of thirty years is for the former, that is armed robbery. They went further to argue that the G word `armed' has not been defined - probably they mean not defined under the Penal Code. However, they have pointed out that the definition of that word in the Arms and Ammunition Ordinance, cap 223 does not include `panga, shoka, rungu, nondo or knife'. As those were the items it was said they had in their possession on the fateful night, they argued, they did not commit armed H robbery so their punishment should have been fifteen and not thirty years.

Mr Sengwaji started by challenging that reasoning. We are satisfied that in this appeal it is not necessary to determine whether or not a person with any of the items enumerated by the appellants, I that is

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A `panga, shoka, rungu, nondo or knife', can be properly said to be armed. The real point of law is not whether the appellants were armed or not. Mr Sengwaji agreed with the court that the charge which confronted the appellants was robbery with violence contrary to s 285 of the Penal Code and not armed robbery contrary to ss 285 and 286. These are two distinct offences: the former, that is B robbery with violence, attracts a minimum punishment of fifteen years while the latter, armed robbery, is visited with a minimum of thirty years imprisonment. The charge has to be very categoric on the offence facing an accused person.

C Here the charge was robbery with violence and the appellants were convicted of that despite the fact that the evidence shows that they carried some weapons. They were not charged with armed robbery. As armed robbery is more serious than robbery with violence, though cognate to it, legally there could not be a substituted conviction. So the conviction is of robbery with violence, punishable D with a minimum of fifteen years and not thirty years.

We have already decided that for a sentence of thirty years imprisonment to be imposed, the charge must be armed robbery. This was in Leonard Raphael and another v R (1) following our earlier decision in John Joseph Onange and another v R (2).

E Act 10 of 1989 has amended the Minimum Sentences Act 1972 by adding a new para (bb) to s 5 which reads:

`(bb) Where any person is convicted of armed robbery the Court shall sentence him to imprisonment for a term of F not less than thirty years.'

Thus, as we have already said above, there is a specific offence of armed robbery. However, the Second Schedule to the Criminal Procedure Act 1985 giving Forms of Stating Offences in G Information does prescribe in item 8 the format `Robbery with violence, contrary to s 285 of the Penal Code, Act 10 of 1989 has not added a new format of `Armed Robbery, contrary to s 285 and 286'. It is easy to see, therefore, why those with the duty of framing charges have been repeatedly omitted to H accused persons specifically with `armed robbery'. We hope that the Director of Public Prosecutions will take the necessary steps to inform those who act on his behalf of these decisions and check against this mistake.

The appeal against conviction is dismissed but that against sentence is allowed. The sentence of thirty years given to the appellants is set aside and in its stead we order that they serve fifteen years I imprisonment from the date they were sentenced.

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[zRPz]PASCAL KITIGWA v REPUBLIC 1994 TLR 65 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Ramadhani JJA, Mnzavas JJA and Lubuva JJA

CRIMINAL APPEAL NO. 161 OF 1991 B

15 December, 1993

(From the judgment of the High Court of Tanzania at Dar es Salaam, Masanche, J) C

Flynote

Evidence - Evidence of a co-accused - Whether evidence of a co-accused may form the basis of conviction - Section 30 of the Evidence Act 1967.

Evidence - Accomplice's evidence - Whether court may convict on accomplice's evidence without corroboration. D

Evidence - Corroboration - What may constitute corroborative evidence.

Criminal Practice and Procedure - Right of the accused to be defended by advocate - Trial court ordered trial to proceed in the absence of defence advocate - Consequences thereof. E

Criminal Practice and Procedure - Penal legislation - Retrospective application of penal legislation - Sentence imposed came into operation after commission of the offence - Whether proper.

-Headnote

The appellant, together with two others, were jointly charged and convicted of robbery with violence F by the Ilala District Court, and sentenced to thirty years imprisonment and corporal punishment. His appeal to the High Court was unsuccessful. He appealed further to the Court of Appeal complaining that it was unfair for the Trial Magistrate to proceed with the hearing of the case after the defence G advocate had left, without giving the applicant an opportunity to get another advocate. He also argued that it was wrong for the trial court to convict on the evidence of a co-accused.

Held:

(i) The second accused in the trial court was an accomplice: a participant to the crime H charged;

(ii) Evidence from a co-accused as in this case is accomplice's evidence and a court may convict on accomplice's evidence without corroboration if it is convinced that the evidence is true, and provided it warns itself of the dangers of convicting on uncorroborated I accomplice's evidence;

(iii) Although the law does not say that conviction on uncorroborated

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A accomplice's evidence is illegal, it is still unsafe, as a matter of practice, to uphold a conviction cased on the uncorroborated evidence of a co-accused;

(iv) Corroborative evidence may be circumstantial and may well come from the words or conduct of the accused and, in this case, the appellant independently corroborated the evidence of the co-accused;

B (v) The trial court was in error in not giving a last chance to the appellant to get another advocate when attention was drawn to the fact that his advocate was absent; but in the circumstances of this case the error did not prejudice the appellant or occasion a failure of justice;

(vi) It was wrong to impose a sentence prescribed by a law which came into operation after the C commission of the offence.

Case Information

Appeal against conviction dismissed; appeal against sentence allowed.

Cases referred to:

(1) R v Saidi Magombe [1946] EACA 1645.

D (2) Migezo Mbinga v Uganda [1967] EA 71.

(3) Laurent Joseph and Another v R [1981] TLR 351.

Tendwa for the respondent.

[zJDz]Judgment

E Lubuva, JA delivered the following considered judgment of the court:

The appellant together with Hamisi Selemani and Issa were jointly charged in the District Court if Ilala with robbery with violence contrary to ss 285 and 286 of the Penal Code. He was convicted as F charged and sentenced to thirty years imprisonment. In addition, he was condemned to corporal punishment of ten strokes. He unsuccessfully appealed to the High Court (Masanche J). He is now appealing to this Court against both the conviction and sentence.

G The facts of the case as found by both courts below are as following: On 11 December 1989, at about 7 pm, Hassan Abdallah (PW2) the complainant set out from his residence in Upanga area for an outing. He was driving a motor vehicle registration No TZ 77533. Before he had gone far from his house, he stopped over at a nearby shop to buy some cigarettes. From the shop as the complainant H was walking back to the motor vehicle he was confronted by one person who was dressed in police uniform. As this self styled policeman was inquiring from the complainant (PW2) about the motor vehicle, three other people joined in. They were also dressed in police uniform. At gun point the motor vehicle was forcefully driven away together with the complainant who, in the process I underwent trau-

matic torture and horror. The complainant was eventually abandoned in Kawe area within the A outskirts of Dar es Salaam in a very distressed condition. The bandits vanished with the motor vehicle.

In the course of investigation, on 13 December 1989 the motor vehicle was found in Mwananyamala at the house of one Hamisi (accused No 1) who was jointly charged with the appellant. He was B acquitted at the trial before the District Court. Issa Hamisi the son of Hamisi Selemani was the other accused (accused No 2) who was charged with the appellant for receiving stolen property and was sentenced to three years imprisonment. He did not appeal. The appellant and two of his friends C (Emmanuel and Frank) who could not be traced had brought the motor vehicle to this house in Mwananyamala from where it was recovered resulting in the arrest and prosecution of the appellant, (third accused), Hamisi Selemani (first accused) and Issa Hamisi (second accused).

The appellant appeared before us in person. The respondent was represented by Mr J B Tendwa, D learned Senior State Attorney. At the hearing of the appeal, the appellant emphasized his complaint that it was unfair for the trial magistrate to proceed with the hearing of the case in the absence of his advocate. He should have been given the opportunity to look for another counsel since the advocate E Mr Mchora could not continue to conduct this appeal on the basis of the ground set out in his field memorandum of appeal.

In his first ground of appeal, the appellant asserts that the learned judge erred in law in supporting a conviction which was based on the evidence of a co-accused. He cited s 30 of the Evidence Act F 1967 in support of his argument that the evidence of the co-accused, (second accused) should not have been admitted since it was made in circumstances of such a nature as was likely to cause an untrue admission of guilty. He argued further that as the confession of the second accused was G induced, his evidence should not have been acted upon. Mr Tendwa, Senior State Attorney briefly stated that both the courts below properly addressed themselves on this point and relying on the provisions of s 142 of the Evidence Act 1967, accepted the evidence of the co-accused (second accused). He argued that this ground of appeal was without substance. H

On record, it is quite clear that both the trial magistrate and the learned judge on first appeal seriously and properly directed themselves to this important issue. It raises a fundamental aspect on which the evidence implicating the appellant hinges. The trial magistrate in a commendable manner dwelt at I length in analyzing the

A evidence of the second accused as a co-accused. Likewise, the learned judge addressed himself on the matter saying:

> `Evidence from a co-accused is accomplice evidence but the law does not say that a court cannot convict on accomplice evidence without corroboration. It can convict if it is convinced that the evidence could be no other than B true, provided it warns itself of the dangers of convicting on an accomplice's evidence without corroboration.'

The learned judge could not fault the trial magistrate on her approach towards the evidence of an C accomplice. He concluded that on the evidence given in court together with the cautioned statement the trial magistrate was satisfied that the appellant was one of those who robbed the complainant (PW2). We think the learned judge was correct. In regard to the second accused at the trial (Issa D Hamisi) there is no doubt in our mind, that he was an accomplice for the following reasons. One, the second accused received the motor vehicle which was brought to his house by the appellant together with the other two persons who are at large (Emmanuel and Frank) on the understanding that it would be taken on safari the following day. Second, soon after the motor vehicle had been E brought to the house of the second accused the carpets, the registration number plate; seat covers, and tyre of the car were removed with the assistance of the second accused. Such evidence in our view shows clearly that the second accused was aware or had reason to suspect that the car had F been stolen. He was therefore a participant to the crime - participet criminis. We will now examine the legal effect of the evidence of the accomplice, the second accused at the trial (DW2) against the appellant. It is common knowledge that under s 142 of the Evidence Act 1967, the evidence of an accomplice is admissible against a co-accused. It provides:

G `142. `An accomplice shall be a competent witness against an accused person; and a conviction is not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice.'

H However, as correctly observed by the trial magistrate and the learned judge, even though the law is such that a conviction based on uncorroborated evidence of an accomplice is not illegal, still as a matter of practice, the then Court of Appeal for Eastern Africa and this Court have persistently held that it is unsafe to uphold a conviction based on uncorroborated evidence of a co-accused.

I In this case, the trial magistrate as well as the learned judge on

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first appeal apart from warning themselves of the danger of convicting on uncorroborated evidence of A the second accused (DW2), went further to look for other evidence implicating the appellant. It is common ground that corroborative evidence may well be circumstantial or may be forthcoming from the conduct or words of the accused. On this, numerous decisions have been made by the then B Court of Appeal for Eastern Africa - see R v Saidi Magombe (1) and Migezo Mbinga v Uganda (2). On record, the trial magistrate addressed herself to the cautioned statement of the appellant. Assistant Inspector Tuomas Iddi Semkondo, the investigation officer, took the cautioned statement of the appellant. We are satisfied that it was a voluntary statement made without any inducement or C torture as correctly found by the learned trial magistrate. In that statement, the appellant, on his own volition mentions Emmanuel and Frank as the other people who were involved in the robbery of the car. We think the learned trial magistrate properly took that view. If the appellant had not participated D in the commission of the offence, how was he able to know of Frank and Emmanuel who are still at large as participants to the crime. It had not been suggested to him by anybody, it came from him voluntarily. In the circumstances, we think the learned trial magistrate correctly held that this conduct E of the appellant independently corroborated the evidence of the co-accused, the second accused at the trial.

On this ground, we are convinced that both the lower courts having believed the evidence of Issa Hamisi (DW2) as truthful, and warning themselves of the danger of convicting on the evidence of an F accomplice whose evidence was corroborated by the conduct of the appellant, there was no misdirection or error on the part of the learned judge.

Ground two of the appeal concerns legal representation. It complains against the decision of the trial magistrate to proceed with the trial of the case in the absence of Mr Mchora, advocate for the G appellant. It deprived the appellant of his right to legal representation. On this important legal point, at first Mr Tendwa learned Senior State Attorney for the Republic, was not inclined to deal with it at length because the matter was not raised on appeal before the High Court. However, at the H suggestion of the Court, he submitted that the advocate's absence at the trial did not prejudice the determination of the case. Mr Tendwa finally contended that the appellant had ample opportunity of defending himself as well as cross examining the witnesses at the trial on the various aspects of the case. I

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A From the record, it is apparent that Mr Mchora, learned advocate had been appearing for the appellant from the beginning of the trial. The accused persons (first and second) were not represented throughout the trial. The trial started on 15 July 1989 and since then, on different days, B evidence had been taken from a total of four prosecution witnesses in the presence of Mr Mchora who cross-examined such witnesses. After the fourth prosecution witness had testified on 24 August 1989, the case was adjourned until 5 September 1989 for continued hearing. On 5 September 1989 when the case was called out for hearing Mr Mchora for the appellant was absent without any C information to the court. The case was again adjourned until 19 September 1989. On 19 September 1989 again Mr Mchora was absent without any information. The case was once again adjourned until 29 September 1989 for mention and 5 October 1989 for hearing. The case was mentioned on 29 September 1989 when 5 October 1989 was confirmed as the date for hearing. On 5 October 1989 D when the case was called out for hearing Mr Mchora was again absent. Then, the appellant stated:

`I have not received any information about my advocate.'

E The court then recorded:

`Advocate of third accused Mr Mchora is absent without cause. We will proceed with hearing.'

F The trial then proceeded to finality without the appellant's advocate. The appellant defended himself as the other accused (first and second) did.

The main issue for consideration on this ground is whether the absence of the advocate did G prejudice the case of the appellant. That is, if the advocate was present, would it have affected the determination of the case against the appellant. In the case of Laurent Joseph and another v Republic (3) we had the occasion to observe on the importance of affording opportunity to accused H persons to have legal representation during trial. It is more pertinent as it happened in the instant case where the party concerned had engaged the service of an advocate. In the case cited (supra) the appellant was the only one among the other accused persons in a murder charge who was not represented. In the circumstances, because it was not certain if his defence would have been I affected had the appellant been represented, we ordered a retrial of the case for all the accused persons. In the instant case, contrary to the case

cited above, the appellant was the only one who was represented by counsel. The rest of the A accused were not represented.

In view of the time honoured practice, with respect, we think the learned trial magistrate was in error in not giving a last chance opportunity to the appellant when the attention of the court was drawn to the fact that the advocate was absent. It would then be open to the appellant either to impress upon B Mr Mchora to appear at the next date set for hearing or to arrange to get another advocate. However, though the trial magistrate erred on this point, we are of the settled view that in the circumstances of the case the error did not prejudice or occasion a failure of justice on the part of the appellant. In our C view, this is because, first, the appellant's engagement of the service of an advocate is no justification for protracted and undue delay in the

disposal of proceedings before the court due to the advocate's failure to attend court trial. In this case Mr Mchora, learned advocate had on a number of D occasions absented himself from the court without information. The court had obliged to and granted several adjournments. Second, and more importantly, the main line of defence of the appellant is the evidence of DW2 (second accused) as a co-accused. We have already sufficiently addressed ourselves to this evidence. It is an issue which was looked into in the light of the statutory E provisions of s 142 of the Evidence Act 1967, and the rule of practice pertaining to the evidence of an accomplice. Thirdly, the appellant's cautioned statement (exh P5) was reiterated by the second accused (DW2). To all these, the learned trial magistrate addressed herself sufficiently. Therefore, F we do not think that the presence of the advocate would have made any difference to the legal defence of the appellant. We are convinced that the case of the appellant was not prejudiced when the learned magistrate proceeded with the trial in the absence of the appellant's counsel. We now turn to ground three. It concerned the legality of the sentence imposed. Mr Tendwa, Senior State G Attorney, conceded that it was an error on the part of the learned trial magistrate to invoke the provisions of Act 10 of 1989 in this case. According to Mr Tendwa, the offence took place on 11 February 1989. In that case, in terms of the provisions of s 13(6)(c) of the Constitution of the United H Republic of Tanzania, this Act which provides for a minimum of thirty years imprisonment could not be applied. This section of the Constitution provides:

`13(6)(c) No person shall be punished for any act which before its commission was not defined as such offence, and no penalty imposed I

A for any criminal offence shall be heavier than the penalty in force at the time the offence was committed.'

And s 49 of the Interpretation and General Clauses Act, chap 1 of the laws provides:

B `49. Where an act constitutes an offence and penalty for such offence is amended between the time of the commission of such offence and the conviction thereof; the offender shall, unless the contrary intention appears, be liable to the penalty prescribed at the time of the commission of such offence.'

C Such being the position of the law, and as correctly conceded by Mr Tendwa learned Senior State Attorney, it is clear that it was wrong to apply Act 10 of 1989 which came into operation after commission of the offence. To do so means applying a penal legislation retrospectively which is in D conflict with the above cited legislative provisions. With respect, this is an aspect which the learned judge did not address himself. The applicable legislation at the time of the commission of the offence is the Minimum Sentences Act 1967 and the Penal Code. Accordingly, we set aside the sentence of E thirty years imprisonment and the order of corporal punishment. The gravity of the offence needs no further explanation. The minimum sentence prescribed for such an offence under the law as it stood then was seven years imprisonment and the upper limit set under the Penal Code is twenty years. We accordingly substitute a sentence of fifteen years imprisonment therefore.

F Consequently, for reasons explained, the appeal against conviction is dismissed and the appeal against sentence is allowed to the extent explained above.

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[zRPz]JAMES F GWAGILO v ATTORNEY GENERAL 1994 TLR 73 (HC)

Court High Court of Tanzania - Dodoma

Judge Mwalusanya J

CIVIL CASE NO. 23 OF 1993 B

10 January, 1994

Flynote

Civil Service - Removal of civil servant from service in the public interest - Section 19 of the Civil Servant Act 1989. C

Public Interest - Power of the President to remove civil servants in the public interest - What constitutes public interest.

Jurisdiction - Ouster of jurisdiction - Statutory provision that an act of the President shall not be enquired into by any court - Effect thereof - Section 23(2)(a) of the Civil Service Act 1989. D

-Headnote

The plaintiff, a seasoned civil servant, was charged under the Economic and Organised Crime Control Act 1984 and acquitted. Then disciplinary proceedings were instituted against him under the Civil Service Regulations; the proceedings ended in his favour. He was then removed from office by, as stated in the letter communicating the decision to remove him, the President directing that he be E removed in the public interest. He filed a suit for a declaration that his removal from office was wrongful. The defendant raised a preliminary point to the effect that the court had no jurisdiction to try the case because the President had a prerogative power to remove a civil servant in the public interest; that civil servants held office at the pleasure of the President; and that the President's F decision to remove a civil servant in the public interest could not be enquired into by any court.

Held:

(i) The prerogative power of the Crown to dismiss a civil servant at will ended, and did not devolve to the President, when Tanganyika became a Republic in 1962; instead the G President could only remove a civil servant in the public interest under s 20(3) of the Civil Service Act 1962, Cap 509, now replaced by the Civil Service Act 1989 (Act No 16 of 1989);

(ii) Termination of a civil servant at the will of the President is not the same thing as removal in the public interest; in the former the president need not show the cause for the discharge H while in the latter he must show the public interest being served;

(iii) When removing a civil servant in the public interest, the President is bound to give reasons indicating the public interest to be served; under the Constitution the civil servant

so I removed has the right to appeal against, or to apply for judicial review of, that removal and if

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A no reasons are given therefore, that constitutional right will be rendered ineffective and illusory;

(iv) Disclosure of reasons for removal of a civil servant in the public interest is also necessary so as to reduce the possibility of casualness, arbitrariness and abuse of power in the decision making process and to instill public confidence in it and maintain its integrity, and to B satisfy a basic need for fair play;

(v) The notion of a subjective or unfettered discretion is contrary to the Rule of Law; although the Civil Service Act 1989 says that the President may remove a civil servant from office if he considers it to be in the public interest to do so, the discretion of the President must C nevertheless be exercised objectively and the High Court may enquire into that exercise to see if it was properly exercised;

(vi) Statutory clauses ousting the jurisdiction of the courts are ineffective to exclude the power of the High Court to exercise its supervisory role of judicial review conferred on it by article D 108(2) of the Constitution;

(vii) The provisions of ss 6 and 7 of the Pensions Ordinance which say an officer removed from service in the public interest has no right to compensation for past services and no right to other allowances he is otherwise entitled to, and which bar such officer from presenting his claim in court are unconstitutional and void; the plaintiff is at liberty to present his claim in E court.

Case Information

Preliminary object overruled.

Cases referred to:

(1) Opoloto v Uganda [1969] EA 63.

F (2) Padfield v Minister of Agriculture, Fisheries and Food, [1968] AC 997.

(3) Minister of National Revenue v Wright's Canadian Ropes Ltd, [1947] AC 109.

(4) Re: In the Matter of Amir Hamza Umar and the Minister for Local Government, HC-MZA-Misc Civil Cause No 9 of 1989 (unreported).

(5) Osmond v Public Service Board [1985] LRC (Const) 1041.

G (6) SP Quota v Union of India [1982] AIR (SC) 149.

(7) Agro-Industries v Attorney General [1994] TLR 43.

(8) Secretary of State for Education and Science v Metropolitan Borough of Tameside [1976] 3 All ER 665.

(9) Secretary of State for Employment v Associated Society of Locomotive Engineers and Firemen (No 2) [1972] 2 QB 455.

H (10) Attorney General of St Christopher, Nevis and Anguilla v Reynolds [1979] 3 All ER 129.

(11) Laker Airways Ltd v Department of Trade [1977] 2 All ER 182.

(12) Anisminic Ltd v Foreign Compensation Commission [1969] 2 AC 147.

(13) Re: Racal Communications [1980] 2 All ER 634.

(14) Attorney General v Lesinoi Ndeanai [1980] TLR 214.

I (15) Ally Linus v Tanzania Harbours Authority CAT Civil Appeal 2/1983 (unreported).

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(16) Dr Kaijage v Esso Standard Tanzania Ltd CA - DSM - Civil Appeal No 10/1982 A (unreported).

(17) Council of Civil Service Unions v Minister for Civil Service [1984] 3 All ER 935.

(18) Sanai Murumbe v Muhere Chacha [1990] TLR 54.

(19) Director of Public Prosecution v Daudi Pete [1993] TLR 22.

(20) Kukutia Ole Pumbun v Attorney General [1993] TLR 159. B

Mbezi, for the Plaintiff.

Nyabiri, for the Defendant.

[zJDz]Judgment

Mwalusanya, J: Delivered the following considered judgment of the court:

The power of the President of the United Republic of Tanzania to remove a civil servant from service C in public interest is being challenged in this case. The question is, does the President have the authority to remove someone in the public service in public interest disclosing what that public interest is? Under s 19 of the Civil Service Act 16 of 1989 it is provided: D

`19. The President may remove a civil servant from the service of the Republic if he considers it in the public interest to do so.'

The issue is, what is in public interest? Is the word of the President final? In other words in deciding E as to whether the decision was in public interest, what test to apply, a subjective test or an objective test? The State Attorney Mr Nyabiri has argued that the test is subjective and so the decision of the President cannot be questioned in court. F

There is another question as to whether this court has jurisdiction to inquire as to whether the President complied with the law. Under s 23(2)(a) of the Civil Service Act 16 of 1989 it is provided:

`23(2)(a)The question whether the President has validly performed any function under this Act shall not be inquired into by or in any court.' G

Have the courts been rendered impotent by that provision ousting the jurisdiction of the courts? These are the questions that I have been invited to answer in this case.

The plaintiff in this case is a seasoned civil servant one Mr James Funke Gwagilo who until 15 May H 1990 was a Regional Development Director for Tabora Region. By a letter dated 29 December 1990 he was informed by the Principal Secretary (Establishment) that `the President under s 19(3) of the Civil Service Act 16 of 1989 and s 8(f) of the Pensions Ordinance cap 371 and Standing Order F35 has directed that you are retired from the public service I

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A in public interest with effect from 15 May 1990'. No reasons were disclosed as to what rendered the retirement to be of interest to the public at large. However the letter states that the retired servant would be paid all his pension due.

Now the said plaintiff has filed a suit for a declaration that his retirement in public interest was B wrongful. He prays to be declared as still a lawful employee of the government. He claims Shs 47,559,511/60 as damages for wrongful retirement and his arrears of salary and other allowances that he was entitled to. He also claims Shs 157,717,644/60 as special damages. The Government C through the State Attorney Mr Nyabiri has raised a preliminary point to the effect that this court has no jurisdiction to try this case. However the plaintiff through his advocate Mr Mbezi has contended that this court has the jurisdiction to try the case.

D First the State Attorney Mr Nyabiri has argued that the President under article 36(2) of the Constitution has the prerogative power to terminate or remove a civil servant in the public service in public interest. He said that power is supplemented by the Government Standing Order F35 which states that a civil servant holds his office at the pleasure of the President as such he can be dismissed at will. Counsel for the plaintiff Mr Mbezi has rightly pointed out that the correct Standing E Order is F44, which states that a civil servant holds his office at the pleasure of the President.

I will be quick to point out that the Standing Orders have no force of law. Those standing orders have F been superseded by the provision of the Civil Service Act 16 of 1989 and the Constitution. The Standing Orders had validity only during the colonial period when the Crown could dismiss a civil servant at will as he held office at the pleasure of the Crown. When Tanganyika became a Republic G in 1962 the prerogative power of the Crown to dismiss a civil servant at will did not devolve to the President. Instead the President could only remove a civil servant not at will but in public interest as per s 20(3) of the Civil Service Act 1962, cap 509. Therefore the prerogative to dismiss at will has been abrogated. As Prof Abraham Kiapi points out in his book Civil Service Laws in East Africa H (1984) East African Literature Bureau at 54:

> The power to dismiss can only be exercised if it is in the public interest. There is a distinction between this and the power to dismiss at will exercisable by the Crown in England or the President in Uganda. Whereas under the prerogative the Crown need not state why an officer is being dismissed and no cause need be shown for the I discharge, under the Tanzania Act, the President must act if the

> public interest so requires. There must exist some circumstance to enable the President to form the opinion that the A removal of an officer is in the public interest.

In fact article 36(2) of our 1977 Constitution which the State Attorney has cited reinforces the view that the President has no power to dismiss a civil servant at will, contrary to what the Standing Order B provides. Article 36(2) of the Constitution clearly provides that the President has no power to terminate or remove someone in public interest except in accordance with the provisions of the Constitution or the law of the land. Now the only law available for termination or removal in public interest is the Civil Service Act 16 of 1989. C

In the same breath it may be of interest to note the observation of Prof McAuslan in his book Administration Law in Kenya where at 10 he states: D

It would then follow that wrongful dismissal would be actionable, as a breach of contract of employment. In Kenya neither the Constitution nor the regulations provide for dismissal at pleasure by the President or the Public Service Commission, only termination of appointment in the Public interest; this is very different from dismissal. It would E seem to follow therefore that there is a proper contractual relationship between the Kenya Government and the servants, one in which, it is true, all the cards are stacked on one side, but that is not uncommon these days and it represents a step forward from the colonial position. F

I hope by now the State Attorney Mr Nyabiri has understood that the Government Standing Orders do not represent the true state of the law. Mr Nyabiri was also quite wrong to think that the Uganda case of Opoloto v Uganda (1) represents the true position of the law. That case held that the President of G Uganda had the power to dismiss a civil servant at will. That is the position in Uganda where the Constitution of Uganda stated that on the attainment of Republican status, the prerogative powers of the Crown became vested in the President of Uganda. But in the 1977 Constitution of Tanzania we have no such provision. The President of Tanzania has no prerogative power to dismiss a civil H servant at will but in terms of article 36(2) of our Constitution he must remove someone in the civil service in accordance with the law ie Civil Service Act 16 of 1989.

Now the next question is whether removal in public interest is equivalent to termination at the will of the President. The answer is I

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A an emphatic no. As Prof Abraham Kiapi rightly points out in the passage I have quoted above, whereas in the termination at will the Crown need not show the cause for the discharge, under our law the President must state what the interest of the public is being served. To quote his word: `There must exist some circumstance to enable the President to form the opinion that the removal of B an officer is in public interest.' The President cannot and should not just out of the blue, state that he was removing someone in public interest without disclosing the interest of the public to be served. Otherwise he will be accused of acting arbitrarily and in a high-handed manner. In other words it will C be an abuse of power.

The duty to give reasons by the President when removing someone in the civil service in public interest is reinforced by the provisions of article 13(6)(a) of our Constitution. That provision states that every person whose rights and obligation are being determined by a public officer, has the right D of appeal or the right to another remedy against that decision. By the phrase `another remedy' there is envisaged the right to judicial review. But there can be no judicial review if the decision-maker has not given the reasons for his decision. As Lord Upjohn observed in the case of Padfield v Minister of E Agriculture, Fisheries and Food (2) at 1061

> . . . if he does not give any reason for his decision a court may be at liberty to come to the conclusion that he had no good reason for reaching that conclusion.

F No doubt the absence of reasons would render the constitutional right to appeal to judicial review ineffective and illusory. Consequently there is an implicit obligation to give reasons in order to facilitate and render meaningful the exercise of the right of appeal and judicial review.

Our Constitution in article 13(6)(a) must have intended the constitutional right of appeal and judicial G review to be an effective right and that the President by keeping silent cannot defeat the citizen's constitutional right. To hold otherwise would mean that the President could in almost every case, render the right of appeal and judicial review completely nugatory - see the decision of the Privy H Council in the case of Minister of National Revenue v Wright's Canadian Ropes Ltd (3) at 123. If reasons are not given for a decision by the President that will render it virtually impossible for the courts to perform their function of judicial review. If the basis and reasons for the impugned decision are not articulated it is difficult for a reviewing court to adjudge the validity of the decision. The courts I cannot exercise their duty to review unless they are

advised of the considerations underlying the action under review. That is the common law rule also A all over the Commonwealth - see In the Matter of Amir Hamza Umar and the Minister for Local Government (4) and Osmond v Public Service Board (5). B

Another reason for requiring disclosure of reasons for retiring in public interest, is to ensure proper application of mind, to reduce the possibility of casualness and capricious. In brief to maintain the integrity of the decision-making process. The compulsion of disclosure of the public interest involved C guarantees consideration and introduces clarity. If reasons for an order are given there will be less scope for arbitrary or partial exercise of powers and the order ex-facie will indicate whether extraneous circumstances were taken into consideration by the President in reaching his decision. That will be an effective restraint on abuse of power. D

In addition to imposing a healthy discipline on the decision makers, public confidence in the decision-making process is enhanced by the knowledge that acceptable reasons have to be given by those who exercise administrative power. Besides, even if the decision is adverse, the person E affected may be convinced by the reasons to accept it as a reasonable and fair exercise of discretionary power.

Another important consideration underlying the requirement to give reasons as to why a servant is removed in public interest, is to satisfy a basic need for fair play. A person affected by an adverse F order is entitled to know why the decision has gone against him or her. What is required is not a detailed judgment but a brief and concise statement of reasons for the adverse decision.

Moreover, the obligation to give reasons, our President should note, also flows from the citizen's right to know and the right to have information which is an essential component of the freedom of speech and expression guaranteed under article 18 of our Constitution. The Supreme Court of India in the case of S P Quota v Union of India (6) declared the right to know from the guarantee of free speech in the Indian Constitution. I adopt that reasoning. Thus the rights to have information obliges the President and other authorities to disclose reasons for their decisions which affect citizen's rights.

It can be said with confidence that since article 13(6)(a) of our Constitution provides for the right of appeal and right of judicial review from every decision affecting citizen's rights, then ipso facto

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A it creates a third head of the principles of natural justice ranking equally with audi alteram partem (the rule against bias). This third head is the right to reasons from a decision-maker - that it is a denial of natural justice to refuse to give reasons to the party who lost. Thus the third pillar of the principles of natural justice is here to stay just as day follows night. In order that it be at no B disadvantage in point of latinity, this third arm of the principles of natural justice, should be referred to as nullum arbittrium sine rationibus.

So the State Attorney Mr Nyabiri was wrong as was the President to equate removal in public C interest with termination at the President's will or pleasure. There is a vast different between the two as adumbrated above.

Then Counsel for the Republic Mr Nyabiri argued that it is for the President and not the courts to determine what amounts to public interest. He said that the decision of the President is subjective D and that is why the legislation in question states that `if the President considers it' to be in public interest. So he said that the words used put it clearly that it is entirely in the discretion of the President to determine whether a particular decision is in public interest or not. I am quite certain that the State Attorney is wrong. In matters of this kind the test is an objective test and not a subjective E test. A similar expression was considered by the Tanzania Court of Appeal in the case of Agro Industries Ltd v Attorney-General (7) whose judgment was delivered on 23 April 1993. What was in F issue was the provision in s 10(2) of the Land Ordinance cap 113 which provides:

`Notwithstanding the provisions of ss (1) the President may revoke a right of occupancy if, in his opinion, it is in the public interest so to do.'

G In that case the revocation of right of occupancy was done by the President in favour of a trespasser (a public corporation) as against a lawful owner (a private company). The Tanzanian Court of Appeal, as per Ramadhani JA held that notwithstanding the wording suggesting a subjective H test the test to be applied was an objective test. He said at 14-15 of the typed judgment:

In the eyes of the law a trespasser is a trespasser be it a public enterprise or a private enterprise or an individual. So the crucial question is what action is in the public interest: to protect one with a legal title or to protect a I trespasser? What is at stake is the sanction of a legal right, and pertaining the right to property, against the use of

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naked force. Which of the two should be protected in the public interest? We are satisfied that public interest, as we A have stated to understand it, requires that legal property rights should be protected against trespassers. . . . Admittedly that subsection provides a subjective test and that is: in the opinion of the President. In this case that opinion was based on

the recommendations of the PMO which did not describe Darbrew in its true colours that it was a trespasser. In fact the President was misled. If the President was seized of the full and correct situation he B would not, in our opinion, have used his name to protect a trespasser albeit a public enterprise. He would have been of the opinion that, that was not in the public interest'.
The important point to remember is that the Tanzania Court of Appeal applied an objective test despite the wording of the statute in question. Ramadhani JA emphasized that point at pages 12-13 of his typed judgment by stating

`So what do we understand by an action being in the public interest? We think it is so when looked at objectively with impartial eyes the section is primarily and not incidentally in the interest of the public which depending on the matter at issue, may even comprise the individual or individuals concerned and it matter not whether the public is aware of it or not.'

So a matter which benefits an individual may be in public interest depending in the circumstances, for example where the basic human rights of an individual are at stake against an oppressive majority or public.
The subjective formulation of discretionary powers is not a new phenomenon, as often the executive attempt to restrict the scope of judicial review. But the courts do not consider themselves impotent in the face of those subjectively framed discretionary powers. In a case from England, the case of Secretary of State for Education and Science v Metropolitan Borough of Tameside (8) the statute stated that `if the Minister was satisfied' he could decide something. The issue was whether he could be challenged. Lord Wilberforce said at 681-2:

`This form of section is quite well known and at first sight might seem to exclude judicial review. Sections in this form may, no doubt, exclude judicial review on what is or has become a matter of pure judgment. But I do not think that they go further than that. If a judgment requires, before it can be made, the existence of some facts, then, although the evaluation of those facts if for the Secretary of State alone, the court must enquire whether these facts exist and have been taken into account, whether judgment has been made on a

A proper self-direction as to those facts, whether the judgment has not been made on other facts which ought not to have been taken into account. If these requirements are not met, then the exercise of judgment however bona fide it may be, becomes capable of challenge.'

B And a similar view is taken by Lord Denning MR in the case of Secretary of State for Employment v Associated Society of Locomotive Engineers and Firemen (No 2) (9) where the statute said `if it appeared to the Minister' he could do certain things. Lord Denning MR at 492-3 said:

C `If it appears to the Secretary of State, this in my opinion does not mean that the Minister's decision is put beyond challenge. The scope available to the challenger depends very much on the subject matter with which the Minister is dealing. In this case I would think that if the Minister does not act in good faith or if he acts on extraneous considerations which ought not to influence him or if he plainly misdirects himself in fact or in law, it may well be that D a court would interfered. But when he honestly takes a view of the facts or the law which could

reasonably be entertained, then his decision is not to be set aside simply because thereafter someone thinks that his view was wrong.'

E The Privy Council as per Lord Salmon expressed their sentiments in more biting language in the case of Attorney-General of St Christopher, Nevis and Anguilla v Reynolds (10). When it said at 656:

F `Their Lordships consider that it is impossible that a regulation . . . could be properly construed as conferring dictatorial powers on the Governor, and that is what the regulation would purport to do if the words "if the Governor is satisfied": mean "if the Governor thinks that etc". No doubt Hitler thought that the measures - even the most G atrocious measures - which he took were necessary and justifiable, but no reasonable man could think any such thing.'

The notion of a subjective or unfettered discretion is contrary to the Rule of Law. All power has legal H limits and the rule of law demands that the courts should be able to examine the exercise of discretionary power. If the discretion is not subject to review by a court of law then in our judgment that discretion would be in actual fact as arbitrary as if the provisions themselves do not restrict the I discretion to any purpose and to suggest otherwise would in our view be naïve.

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Perhaps at this juncture I should remind all and sundry that the importance of the role of the courts in A trammeling abuse of executive and administrative power of the government was fittingly put across by the eminent English judge Lord Denning MR in the case of Laker Airways Ltd v Dept of Trade (11) where he said at 194-5: B

`These courts have the authority and I would add the duty, in a proper case, when called upon to enquire into the exercising of a discretionary power by a Minister of his department. If it is found that this power has been exercised improperly or mistakenly so as to infringe unjustly on the legitimate rights and interests of the subject, then these C courts must so declare. They stand, as ever, between the executive and the subject, as Lord Atkin said in a famous passage, alert to see that any coercive action is justified in Law. To which I would add: alert to see that a discretionary power is not exceeded or misused.' D

So the learned State Attorney is patently wrong to think that since the discretionary powers of the President are subjectively worded, then the President is beyond challenge. As amply demonstrated above, the President can be challenged, so as to see that his power has been properly exercised. E

We now go to the ouster clauses and which sometime they are referred to as pricative clauses, which attempt to oust the jurisdiction of the courts. As stated earlier, the ouster clause here is contained in s 23(2)(a) of the Civil Service Act 16 of 1989. At the outset I would like to put down F plainly that ouster clauses are paper tigers meant to scare the unwary and the uninitiated in this realm of the law. They are simply put there as scarecrows. As Hon Mr Justice John Laws states in his article `Is the High Court the Guardian of Fundamental Constitutional Rights?' in the Public Law Journal Spring 1993 at 78: G

`Since the case of Anisminic v Foreign Compensation Commission (12) clauses purporting to oust the jurisdiction of the courts have fallen into disuse. To oust the courts power of review is necessary to put some party above the H law or at least to make it and not the court the judge of what the law is, which is the same thing. The courts will presume against the conferment of such a power.'

The same view was expressed by Lord Diplock with characteristic pungency in the case of Re Racal Communications (13): I

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A `It proceeds on the presumption that when Parliament confers on an administration tribunal or authority, as distinct from a court of law, power to decide a particular question defined by the Act, conferring the power, Parliament intends to confine that power to answering the question as it has been so defined and if there has been any doubt as to what that question is, this is a matter for courts of law to resolve in fulfilment of their constitutional role as B interpreters of the written law and expounders of the common law and rules of equity.'

To be sure, ouster clauses are ineffective to exclude the power of the High Court to exercise its C supervisory role as conferred on it by article 108(2) of our Constitution over inferior tribunals and public authorities. It is axiomatic that all statutory power conferred on public officers including the President are subject to supervision by the High Court exercising its classic and traditional function D of judicial review notwithstanding the existence of an ouster clause. The Tanzania Court of Appeal has espoused that view in a number of cases inter alia AG v Lessinoi Ndeinai & others (14), Ally Linus v Tanzania Harbours Authority (15) and D R Kaijage v Esso Standard Tanzania Ltd (16). In the last case mentioned Makame JA observed that despite an ouster clause the High Court could E examine a decision to see if the rules of natural justice were observed in arriving at the decision, which would in turn determine whether there was a valid decision or any decision at all. However I have to point out that the position now is that not only can the decision of a public authority be F challenged for violating the principles of natural justice, but the ground has been expanded. Lord Diplock in the case of Council of Civil Service Unions v Minister for the Civil Service (17) identified four principles which can be used to challenge a decision of a public authority, and that case was G cited with approval by the Tanzania Court of Appeal in the case of Sanai Murumbe v Muhere Chacha (18). These four principles are illegality (failure to follow the law); procedural impropriety (failure to observe the principles of natural justice and failure to act with procedural fairness); irrationality (making a decision which is outrageous in its defiance of logic or of accepted moral standards that H no reasonable person who had applied his mind to it could have made such a decision); proportionality (that the means employed by a decision-maker are no more than is reasonably necessary to achieve his or her legitimate aims). The doctrine of proportionality has been recognised I by the Tanzania Court of Appeal in the case of DPP v Daudi Pete (19)

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and Kukutia Ole Pumbun v Attorney-General (20). The decision of the President in this particular A case is open to challenge on all these four principles.

It may be argued on behalf of the President that since the President did not disclose on which ground of public interest he removed the servant in the civil service, then it is not possible to mount a B challenge on his decision. That argument is naïve. In the Agro Industries Ltd case (supra) the President did not disclose the public interest involved when he revoked somebody's right of occupancy, nevertheless the Tanzanian Court of Appeal took into account the history of the case C which revealed that the revocation was made to assist a public corporation to occupy the land in dispute in which it had trespassed into and the court held that, that was not in public interest. In the case at hand although the President has not disclosed as to what public interest would be served in removing the servant from the civil service yet taking into account the history of the case, the court at D the main trial would be at liberty to consider on whether the President was correct to take into account in reaching his decision the fact that the civil servant in question had an economic sabotage criminal case in which he was acquitted and there were disciplinary proceedings against the said servant but which ended in favour of the said servant. The trial court will have to consider as to E whether the President was right to take into account these extraneous considerations in arriving at his decision.

The courts under the doctrine of separation of powers are charged with the task of upholding the Constitution and acting as a check on other branches of the government. In the two themes above, I F have attempted to explain how the judiciary has rejected attempts by the Executive to overreach individual rights by the use of legislation providing subjective discretionary powers and legislation ousting the jurisdiction of the courts. Court's resistance to attempts on the part of the political G branches of the government to acquire uncontrolled power is highly commendable and shows that they are fitted to provide an effective check against oppressive exercise of power by the Executive. William Wade, in Constitutional Fundamentals', Hamlyn Lectures, 32nd series, (1980) at 83-4 has commended the court's role by stating: H

`. . . to exempt a public authority from the jurisdiction of the courts of law is, to that extent, to grant dictatorial power. It is no exaggeration, therefore, to describe this as an abuse of the power of Parliament, speaking constitutionally. This is the justification, as I see it, for the strong, it might even be said rebellious stand which the I

A courts' have made against allowing Acts of Parliament to create pockets of uncontrolled power, in violation of the rule of Law. Parliament is unduly addicted to this practice, giving too much weight to temporary convenience and too little to constitutional principle. The laws delay, together with its uncertainty and expense tempts government to take B short cuts by elimination of the courts. But if the courts are prevented from enforcing the law, the remedy becomes worse than the disease.'

It is only hoped that the Executive will take this dialogue with magnanimity. Uncontrolled power on the C part of the Executive does not augur well with a democratic government. It should be noted that Courts are in a position of independence and so they are often better placed

than the President or any other public authority to assess the weight of competing aspects of the public interest.

Finally the State Attorney Mr Nyabiri advocating for the President, argued that the provisions of ss 6 D and 7 of the Pensions Ordinance cap 371 bar the plaintiff to present his claim in Court. Both these sections provide that `no officer who has been retired in public interest has an absolute right to compensation for past services and to other allowances he is otherwise entitled to'. The short E answer to these provisions is that they are unconstitutional and so void. They are denying a person the right to remuneration for work done contrary to article 23(1) of our Constitution. Equally article 24(2) providing for the right to property is violated, as that basic right states that no one may be deprived of his property without authority of the law which shall set out conditions for fair an adequate F compensation. The law that is impugned is not good law and is not saved by article 30(2) of our Constitution because it is arbitrary and without adequate safeguards against any such arbitrary decision. And if offends the principle of proportionality - it is not shown that it is reasonably G necessary to achieve a legitimate objective. Both these principles have been expounded by the Tanzania Court of Appeal in the cases of Kututia Ole Pumbun v Attorney-General and DPP v Daudi Pete (supra). It should be noted that under article 9(1)(b) of our Constitution, the President and all the H state agencies are required to direct all the policy and business towards the preservation and compliance with the basic law of the land, that is the Constitution. And article 26(1) of our Constitution directs that every person including the President is obliged to comply with the Constitution. It is therefore surprising to note that the President has opted to obey the unconstitutional I Pensions Ordinance which offends the basic

law of the land. I have to remind the President and all other public officials that under s 5(1) of the A Constitution (Consequential Provisions) Act 16 of 1984 they have to regard all the existing law (laws passed before 1 March 1985) as modified as an to bring them into conformity with our Bill of Rights Act 15 of 1984. So all laws passed before 1 March 1985 should not be taken at their face value, but B should only be obeyed if they don't go against the basic law of the land, the Constitution. The President of the United Republic should be in fore-front to disregard all the laws that are in breach of the Constitution, such as the Pensions Ordinance. As amply demonstrated above the Pensions C Ordinance violates the right to property and the right to a just remuneration for work done. Therefore under s 5(1) of Act 16 of 1984 and article 64(5) of our Constitution, I declare the provisions of s 6 and 9 of the Pensions Ordinance to be void. I hold that the plaintiff is at liberty to present his claims before this court. D

E

[zRPz]HASSANI KILALA v JUMA SAID 1994 TLR 87 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J

CIVIL APPEAL 117 OF 1993 F

1 February, 1994

Flynote

Taxation of costs - Proper procedure to comply with - Proper taxing masters - GN 515 of 1991. G

-Headnote

The appellant filed a fresh case in a Primary Court intended to be a Bill of costs for taxation for a case which started from a Primary Court and ended with the High Court. The bill of costs presented H at the Primary Court was for a claim of Shs 123,000/=. After taxation the Primary Court Magistrate allowed a sum of Shs 21,000/= only. On appeal the District Court raised the sum to Shs 37,200/=. He appealed further to the High Court.

Held:

(i) It was improper for the appellant to file a fresh case for taxation I

1994 TLR p88

A proceedings; he should have filed his bill of costs in the same case file itself in which he was successful;

(ii) For cases starting from the Primary Court and ending in the District Court the taxing master is the Primary Court Magistrate Concerned;

(iii) For cases starting from the Primary Court and ending in the High Court the taxing master is the District Registrar of the High Court;

B (iv) For cases starting from the Primary Court and ending in the Court of Appeal of Tanzania the taxing master is the Registrar of the Court of Appeal or his deputy. Order Accordingly.

Case Information

No case referred to.

[zJDz]Judgment

C Mwalusanya, J:

The appellant Hassani s/o Kilala filed a bill of costs at Kondoa Urban Primary Court for taxation. In fact he filed a fresh case, Civil Case No 23 of 1993. The bill of costs was for a case that started at D Kondoa Urban Primary Court as civil case No 3 of 1987, then the case went on appeal to Kondoa District Court as Civil Appeal No 16 of 1988 and ended with the High Court Dodoma Civil Appeal No 77 of 1991. The bill of costs presented at the Primary Court was for a claim of Shs 123,880/=. The E bill of costs after taxation a sum of Shs 21,000/= only was allowed. The District Court on appeal raised the sum payable as costs to Shs 37,020/=. The appellant was aggrieved and hence the appeal to this court.

It is patently clear that both the Primary Court and District Court are ignorant about where taxation F proceedings are to be conducted. If they knew they would have advised the appellant accordingly.

The first mistake that was made was that it was improper for the appellant to file a fresh case for taxation proceedings. It was wrong in here to file Civil Case No 23 of 1993. The proper

procedure is G for the applicant to file his bill of costs in the case file itself in which he was successful - that is civil case No 3 of 1987. The taxation proceedings in the main suit.
Secondly, it appears the two magistrates who dealt with the matter are not aware of the The H Advocates Remuneration and Taxation of Costs Rules GN No 515 of 1991. These Rules are made under the provisions of the Advocates Ordinance Cap 341. These rules as per rule 2 are applicable to courts subordinate to the High Court. For cases starting from the Primary Court and ending with the High Court the taxing master is the District Registrar of the High Court. For a case starting with a I Primary Court and ending with the Tanzania Court of Appeal the taxing master is the Registrar of
1994 TLR p89
the Court of Appeal or his deputy. For a case starting from the Primary Court and ending in a District A Court, the taxing master is the Primary Court Magistrate concerned.
Therefore in the case at hand the Primary Court Magistrate concerned was wrong to usurp the functions of the District Registrar because the suit in question ended in the High Court. The trial B magistrate should have advised the appellant to file his bill of costs with the High Court. The procedure explained above has an advantage because the High Court has all the proceedings of the Primary Court and those of the District Court and so it becomes easy to take note of appearance of the parties in Court. In the case at hand the Primary Court Magistrate has no case file of the High C Court and so he had only to guess or speculate as to how many appearances the parties made at the High Court.
That was quite improper.
In the event I declare the proceedings of both courts below to be a nullity. The appellant should file a D fresh bill of costs with the High Court. Each party will bear its own costs of this appeal.
As this error that has presented itself in this appeal is common all over the Zone, I direct the District Registrar to serve a copy of this judgment to all Primary Court Magistrates and District Magistrates of this zone. Order accordingly. E
1994 TLR p89
F
[zRPz]HASSANI FADHILI v REPUBLIC 1994 TLR 89 (CA)

Court Court of Appeal of Tanzania - Tanga
Judge Makame JJA, Omar JJA and Ramadhani JJA

CRIMINAL APPEAL NO. 111 OF 1993 G
18 March, 1994
(Appeal from the conviction and sentence of the High Court of Tanzania at Tanga, Msumi, J) H
Flynote
Evidence - Circumstantial evidence - To ground conviction on circumstancial evidence it must be incapable of more than one interpretation. I
1994 TLR p90

-Headnote

A The appellant was charged with and convicted of murder, and sentenced to death. The conviction was based on circumstantial evidence. The deceased died as a result of homorragic shock due to loss of a lot of blood because of incomplete abortion, said to have been performed by the appellant. The learned Trial Judge was satisfied that the appellant had committed the offence. On appeal it was contended that the prosecution did not discharge its burden of proof and that the circumstances B relied upon were capable of more than one interpretation.

Held: We are far from being convinced that the evidence is beyond any reasonable doubt that the appellant performed the abortion.

Case Information

C Appeal allowed.

Cases referred to:

(1) Simon s/o Musoko v R [1958] EA 715.

(2) R v Lucas [1981] 2 All ER 1008.

Lamwai, for the appellant.

D Muna, for the respondent.

[zJDz]Judgment

Ramadhani, JA, delivered the following considered judgment of the court:

E The deceased, Mariam Hamad, died at Bombo Hospital, Tanga on 3 June 1990. The death certificate (Exh P4) prepared by Dr Samuel Mgemwa (PW11) gave cause of death as hemorragic shock due to loss of a lot of blood because of incomplete abortion. As to that there was no dispute. The issue was who induced the abortion.

F It was also admitted that the deceased, on that fateful day, arrived at the house of the appellant, Hassan Fadhili, a Medical Assistant with M/S Foma Factory, at 1 pm walking alone but with some difficulty. That was deposed by Salma Fadhili (PW12), wife of the appellant, who welcomed the deceased as the appellant, then, was not at home. The appellant returned home at about 4 pm and, G after being told of the presence of the deceased, attended her. The nature and the extent of that attention was and still is an issue.

However, it is not again disputed that at about 6.15 pm the appellant took the deceased in a taxi to H CIC Hospital. That taxi was brought, at the instruction of the appellant, by Ali Tondwa (PW4), a tenant of the appellant. At that time the deceased was in a bad state and had to be assisted into the cab and also out of it when they arrived at the hospital. There, the medical officer on duty, Twaba Kajombo (PW7), a medical assistant, was told by the appellant that the deceased had an abortion. At that time I she was bleeding profusely. PW7, having reached the end of his tether,

advised the appellant to take the deceased to Bombo Hospital. But instead of doing that the appellant A left the deceased and retired to his home where he was met by two elder sisters of the deceased: Rehoma (PW1) and Rahima (PW2). What was said between the appellant and the two sisters is a moot point but it is undisputed that the appellant and PW1 took a taxi to the CIC

Hospital from where B they transferred the deceased to Burhani Hospital and eventually to Bombo Hospital. From the house of the appellant, the other sister, PW2, went back to inform their mother, Hilda (PW5), who also went to Bombo Hospital to have a last glimpse of her dear daughter. The deceased passed away shortly after her mother arrived. It is also common ground that the appellant made himself C scarce immediately after he delivered the deceased at Bombo Hospital.

The deceased was buried at Muhoza on 5 June 1990 only to be exhumed twenty nine days later and be subjected to autopsy by Sylvester Enock Mdanya (PW13), an Assistant Medical Officer II who D produced his report (Exh P5) that the abortion was physically induced and that the uterus was perforated.

The learned Trial Judge, Msumi J, convicted the appellant of murder. He believed PWs 1 and 2 that the appellant confessed to them to have performed the abortion on the deceased and the learned E Trial Judge found that evidence to be supported by the post-mortem report (exh P5). In addition, the conduct of the appellant provided the coup de grace. The learned judge said: `... the accused's act of taking the deceased from his house to the afore-mentioned hospitals and paying for transport charges clearly demonstrates his involvement in the said abortion'. F

That judgment is the subject of this appeal. It has been bitterly attacked by Dr Lamwai, learned advocate for the appellant, but dutifully defended by Mr Muna, learned State Attorney, for the respondent. G

Two grounds of appeal have been advanced. The first ground has a number of fronts. For the purposes of clarity we shall deal with every aspect of both grounds as argued by Dr Lamwai, responded to by Mr Muna and the replies of the Counsel for the appellant.

In the first ground the appellant avers that the prosecution did not discharge its burden of proof and that the circumstances relied upon were capable of more than one interpretation. H

As his first point in that ground, Dr Lamwai challenged the post-mortem report (Exh P5). He pointed out that PW13 did not disclose his academic qualifications but merely said that he was an Assistant I Medical Officer II. Dr Lamwai pointed out that that particular

A autopsy, involving exhumation of a body buried twenty nine days previously, called for a sound knowledge of forensic medicine which PW13 did not even claim to possess. As evidence of the lack of pre-requisite expertise, Dr Lamwai claimed, PW13 relied on the information which was supplied to B him by the relatives of the deceased that it was a case of abortion. Apart from that, the learned Counsel pointed out, PW13 did not display the thoroughness of an expert in that he did not give the dimensions of the perforation of the uterus. Dr Lamwai urged us to ignore completely Exh P5 and the oral evidence of PW13.

C Mr Muna merely said that PW13 had some experience on post-mortem in addition to his training as Assistant Medical Officer. In any case, Mr Muna added, even if that piece of evidence is discarded there is still the testimony of PW11 and the death certificate (Exh P4) that some remains of foetus were seen. However, that point was already covered by Dr Lamwai who admitted abortion but D reiterated that the issue was who caused it.

Dr Lamwai said that a lot of credit was put on the two sisters, PWs 1 and 2, but he argued that they did not deserve it as each had recorded two statements at the Police Station in a span of a year. He E said that that should not have been necessary had they been forthcoming. Mr Muna conceded that there are some discrepancies in the two statements of both sisters but dismissed them as immaterial.

Apart from that, Dr Lamwai argued that PWs 1 and 2 were already prejudiced against the appellant as `daktari anayofahamika sane sane hapa mjini kwa shughuli za kuton mimba'. As such, Dr Lamwai F contended, PWs 1 and 2 pre-judged the appellant and then claimed that the appellant had confided to them about the abortion. Mr Muna refuted that and stuck to his guns that PWs 1 and 2 were told so by the appellant and that they reported thus to their mother PW5 who unsuccessfully resisted the G burial as the death was a police case.

Dr Lamwai attacked the veracity of the two sisters even further and labelled them liars. He cited their H evidence that the wife of the appellant (PW12) came out of the house and rebuked the appellant for his habit of performing abortions on others' daughters. Dr Lamwai stated that that was denied by PW12 herself and also by PW4 who was there at the material time. Mr Muna said that that was a question of credibility which was properly decided on by the learned Trial Judge who saw all the four witnesses. In reply Dr Lamwai said that as it was a first appeal this Court could still make its own I finding of credibility.

1994 TLR p93

RAMADHANI JA

As his last prong of attack in the first ground, Dr Lamwai asked whether it was not conceivable that A the deceased went to the appellant when abortion had already been performed on her elsewhere and by another person. He advanced this proposition from two premises. First, he said that there is abundant evidence that the deceased had not been feeling well that morning and even before it. This was said by the mother (PW5) and the two sisters (PWs 1 and 2). The deceased, Dr Lamwai B reminded us, missed a day at school and had to fabricate a hospital chit to explain her truancy. Then that fateful morning the deceased was sluggish in responding to their mother's request to her for a cup of tea. Indeed, seen after she had prepared one, and was allowed by the mother to resume her C sleep, she did so in the corridor rather than in her bed. Even the preceding night one of the sisters, PW2, who shared a bed with her, said that the deceased had not been quite herself. Dr Lamwai wondered whether the deceased had not been at it that early.

Alternatively, Dr Lamwai questioned the unaccounted for three hours of that fateful day. The learned D advocate revisited the evidence of PW1 who left home with the deceased and parted ways at about 10.00 am. The deceased was then proceeding to her friend, one Rose, of unknown surname and address. Three hours later the deceased emerged at the house of the appellant walking with some E difficulty. That was about 1 pm. Dr Lamwai suggested to us that the abortion was performed at Rose's and when the going became painful, the professional assistance of the appellant was sought.

Mr Muna again dismissed the three hours as immaterial. What is crucially important to him is the F fact that the deceased went into the house of the appellant unaided, albeit with some

difficulty, but came out of it completely helpless. Mr Muna also questioned the dilly-dallying of the appellant for some two and a quarter hours after his return home. If the the condition of the deceased had G drastically worsened at the house of the appellant, Mr Muna challenged, why didn't a Medical Assistant as the appellant was, realise the seriousness of the situation and rush the deceased to the hospital. Mr Muna submitted that the deceased had not gone there for professional assistance but for an abortion and that was why the appellant took that long before he resorted to the hospitals. H

The second ground of appeal is that the learned judge erred in law and fact to find that the appellant had the requisite mens rea. Dr Lamwai maintained that all that the appellant did was to try to help the deceased and not to perform an abortion. He argued that there was in fact not even actus reus and I hence there could not possibly

A be mens rea of any sort. Mr Muna's reply was simple: since the appellant performed the abortion he knew that death could possibly result and when it did, then mens rea was very much there.

As already stated, the deceased had incomplete abortion. That is not disputed. That would cause excessive bleeding. We are prepared to take it that the abortion was not natural but induced. The B appellant himself has been of that opinion and he was told by the deceased. The question is did he induce it as claimed by the Republic and found by the learned judge. As already said, that decision was founded on the evidence of the two sisters. PWs 1 and 2, of PW13 and his post-mortem report C (Exh P5) and the conduct of the appellant.

We start by examining the evidence of PW13 and Exh P5. We may as well state right at the beginning that a strictly thin piece of evidence does not advance the case one way or the other. It D confirms what has already been settled: the abortion was induced. However, it does not tell us whether or not the appellant induced it. So we are of the opinion that it should not detain us longer. Suffice it is to say that we agree with Dr Lamwai that PW13 neither disclosed his qualifications for the job nor did he display his expertise in his post-mortem report (Exh P5). We, therefore, ignore E PW13 and Exh P5 completely.

So we are left now with the evidence of the two sisters and the conduct of the appellant.

We take it as a fact that when the two sisters arrived at the house of the appellant, the latter took the F former for a private chat. PWs 1 and 2 were supported by PW4, a tenant of the appellant. The question is what was said. This is the word of the two sisters against that of the appellant. On the side of the two sisters there is the issue of the two statements which each wrote after an interval of a year. Admittedly, the difference between the earlier statements to and the latter ones is not as black G is to white. But definitely it is as pink is to red. The first statements implied that the appellant performed the abortion. Thus PW2 said, for instance `huyo daktari ni daktari amayofahamika sana sana hapa msini kwa shughuli sa kutoa mimba tuliona hivyo ... narohomu anofanya mambo mabaya. Mdipo huyo daktari alituita na akasoma ... Nataka iwo siri kwanza huko nyumbani kwonu msisomo H hata mkuliswa somoni amokauywa vidomge...' But in the second statements the message was so expressed. PW2 said `... alituambia

wasi wasi kwamba yoyo alimfanyia marokomu abortion'. The question is why was this. One would expect, as Dr Lamwai said, that the two sisters would not have I minced their words immediately after the loss of their dear one.

1994 TLR p95

RAMADHANI JA

Apart from that the two sisters claimed in their examination-in-chief to have told their mother that the A appellant had performed the abortion before even the mother went to Bombo Hospital. However, in cross-examination PW1 said that `we could not tell our parents this information earlier because we were confused as a result of the deceased's death'. Even in re-examination by Mr Muna she B repeated: `I was so confused that I could not tell my parents about this incident immediately after deceased's death'. So even the parents were told the story of abortion and that it was by the appellant after the burial. One wonders why or did PW1 know the nature of the mission of the deceased to Rose? C

This brings us to the three hours which have not been accounted for. Surely these cannot be immaterial especially in view of the evidence that the deceased was walking with some difficulty when she was welcomed by PW12, albeit the wife of the appellant, but all the same a prosecution witness. Rose could never be identified to clear the air. D

All the same the situation is compounded by a fact which was conceded by Mr Muna. There was no appointment between the appellant and the deceased and that the two were strangers to each other. The deceased arrived at the appellant's at 1 pm and then inquired from PW12 whether that was the E appellant's house. The appellant on the other hand, returned home at 4 pm from his father-in-law's (PW1) where he was chatting and had lunch. At home the appellant had to be told of the presence of the deceased.

Now, if that was so, one wonders whether the appellant would be so bold or so stupid to perform an F abortion on a total stranger within two hours after their very first encounter. Or was this a case of `kuokoa jahazi' (save the situation) as Dr Lamwai puts it?

We now come to the conduct of the appellant. Did it provide the circumstantial evidence in which the inculpatory facts are incompatible with the innocence of the appellant and incapable of explanation G upon any other reasonable hypothesis than that of guilt? Simon s/o Museke v R (1). Let us see the various circumstances in that light.

One conduct is that the appellant spent a considerable amount of time before taking the deceased to hospital. Some two and a quarter hours elapsed before the appellant took the deceased to the first H hospital. We do not know when the bleeding started. Unfortunately the appellant was not cross-examined on that delay. So what we have is the submission of Dr Lamwai that the taking of a patient to a hospital is a matter of judgment and the most that can be said is that the appellant made an error of judgment. I

1994 TLR p96

RAMADHANI JA

A True, PW7 at CIC Hospital suggested to the appellant that the deceased be taken to Bombo Hospital. That was not done. The appellant said that he had to look for the relatives of the

deceased first. He found them and, as it turned out, PW1 `... advised the accused to take her to Burhani B Hospital where we sometimes get treated'.

Then when they finally reached Bombe Hospital, the appellant left immediately after the deceased was admitted. Dr Lamwai said that the appellant had already spent a lot of time with the deceased and that at that juncture her relatives were already there so the appellant retired home. That to us is a C plausible explanation.

There was also the issue of the paying for the taxis. The first trip to CIC Hospital from the appellant's house could not have been otherwise. As to the second leg from the appellant's house to CIC Hospital in the company of PW1 that can similarly be understood. The appellant was looking for the D relatives of the deceased and PW1 suddenly emerged and she could not necessarily have been expected to carry money on her. The suggestion by Mr Muna that the appellant should have awaited the mother (PW5) from whom to recover the charges, is, as Dr Lamwai said, out of the ordinary E when the deceased was in such a bad shape. Again the appellant could have waited to come and claim his refund any time. So that omission could be innocent and honourable.

Lastly, there is the lie which the appellant told the medical officer of CIC Hospital (PW7); that the F deceased was from the appellant's dispensary at Foma Factory. In R v Lucas (2) it was said:

> `... To be capable of amounting to corroboration a lie told out of Court, must first of all be deliberate. Secondly, it must relate to a material issue. Thirdly, the motive of the lie, must be a realisation of guilt, fear of the truth ... people G sometimes lie, for example in an attempt to bolster up a just cause, or out of shame, or out of wish to conceal a disgraceful behaviour from the family ...'

There is no doubt that was a deliberate lie. We are not quite sure that the lie related to a material issue. What was important to us is that the appellant took his patient to the hospital. We feel that it H would have been different had he said that he had picked up the deceased from the streets. Even that lie to PW7 is not exclusively explainable in terms of appellant's guilt.

After all is said and done, an accusing finger is pointing at the appellant. However, as this is a capital offence the evidence has to be watertight. It is possible that the reputation of the appellant, if any, has I contributed to his conviction. But we are far from being

convinced that the evidence is beyond any reasonable doubt that the appellant performed the A abortion. Suspicion, there is, but that is not enough.

So we allow the appeal, quash the conviction of murder and set aside the sentence. The appellant should be released immediately if he is not otherwise lawfully in custody. It is so ordered. B

C

[zRPz]LIAMBA SINANGA v REPUBLIC 1994 TLR 97 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Omar JJA, Mnzavas JJA and Lubuva JJA

CRIMINAL APPEAL NO. 161 OF 1993 D

14 February, 1994

(From the decision of the High Court of Tanzania at Dar es Salaam, Mapigano, J) E

Flynote

Criminal Practice and Procedure - Change of Trial Magistrates - Second magistrate does not inform accused of F his right to resummon and re-hear witnesses - Section 214(2)(a) of the Criminal Procedure Act, 1985.

-Headnote

The appellant was charged with and convicted of cattle theft. In the court of first instance two G magistrates heard the case. The second magistrate continued with the hearing of the case without informing the accused of his right to have witnesses who had testified before the first magistrate resummoned and re-heard. An appeal by the appellant to the High Court was summarily rejected. On further appeal the Court of Appeal addressed the issue of the accused's right to be informed. H

Held:

(i) The language in s 214(2)(a) of the Criminal Procedure Act is mandatory in that the learned second magistrate was obliged to inform the appellant of his right to demand that witnesses who testified before the first magistrate be summoned to testify before the second I magistrate if the appellant so wished.

1994 TLR p98

A (ii) Had the learned judge been aware of the non-compliance (by the second magistrate) of the mandatory provisions of s 214(2)(a) of the CPA he would not have summarily rejected the appeal.

Case Information

Appeal allowed.

B No case referred to.

Dr Lamwai, for the appellant.

[zJDz]Judgment

Mnzavas, JA, delivered the following considered judgment of the court:

C This is an appeal from the decision of the High Court (Mapigano J), in High Court Criminal Appeal No 89 of 1993 in which the learned judge rejected the appeal summarily. Arguing against the order of the High Court Dr Lamwai, learned Counsel for the appellant, submitted that the case was heard by D two different magistrates in the Court of first instance but that before the second magistrate continued with the hearing of the case the appellant was not informed of his right to resummon the witnesses or any of them so that their evidence might be re-heard before the other magistrate if he E (appellant) so wished. In support of his argument the learned defence Counsel referred to the Court the provisions of s 214 (2)(a) of the Criminal Procedure Act.

Our perusal of the record shows that the appellant was charged with and convicted of cattle theft c/ss 265 and 268 of the Penal Code before the district Court and sentenced to five years imprisonment.

F Hearing of the case started on 28 August 1992 before one, P Nnally, District Magistrate, and two witnesses (PW1 and PW2) gave evidence before him. Thereafter the prosecutor applied for adjournment to enable him to summon one, Juma, another prosecution witness. The magistrate G adjourned the case for hearing on 17 September 1992. Apparently the case did not come up for hearing on 17 September 1992 - instead it came up for hearing on 15 October 1992; and before a different magistrate one, E H Malekela, Senior District Magistrate. Hearing was again adjourned on the request of the prosecutor who told the Court - `the witness has not turned up'. Hearing was H adjourned to 29 October 1992. On that day Mr Malekela, SDM, heard the evidence of Juma Athumai, (PW3). A month or so later, 26 November 1992, a fourth prosecution witness, D/Sgt. Kassim, gave evidence before Mr Malekela and the prosecution closed its case.

I On the same day the appellant gave his evidence in defence and closed his defence.

1994 TLR p99

MNZAVAS JA

The record is silent as to why Mr Nnally, District Magistrate, could not continue hearing the case to its A finality. Nor does the record show that the appellant was informed of his right under s 214(2)(a) of the Criminal Procedure Act.

Section 214(1) of the CPA allows another magistrate to take over and continue with proceedings started by a different magistrate who for any reason is unable to complete the proceedings provided B that before doing so the provisions of s 214(2)(a) are complied with:

The provisions under s 214(2)(a) are loud and clear. They say:

> `214 (2) `Whenever the provision of sub-section (1) applies - C
>
> (a) in any trial the accused may, when the such other magistrate commences his proceedings, demand that the witnesses or any of them be re-summoned and re-heard and shall be informed of such right by the other D magistrate when he commences his proceeds' - (The emphasis is supplied).

That being the language in s 214(2)(a) it was mandatory on the part of the learned second magistrate, Mr Malekela, Senior District Magistrate, to inform the appellant of his right to demand that the witnesses who testified before the first magistrate be summoned and testify before him if he E (appellant) so wished. This, Mr Malekela, Senior District Magistrate, did not do.

With respect to Dr Lamwai, learned defence Counsel, we agree with his argument that had the learned judge been aware of the non-compliance by the second magistrate of the mandatory F provisions under s 214(2)(a) of the CPA he would not have summarily rejected the appeal. The order of the High Court is apparently not supported by the Republic.

In the event the appeal is upheld, the record is remitted to the High Court and it is directed that the G appeal be heard on its merit.

1994 TLR p100

A

[zRPz]RAYMOND FRANCIS v REPUBLIC 1994 TLR 100 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Omar JJA, Mnzavas JJA and Lubuva JJA

B CRIMINAL APPEAL NO. 162 OF 1993
14 February, 1994
(From the decision of the High Court of Tanzania at Dar es Salaam, Mapigano, J)
Flynote
C Evidence - Identification of accused person - Conditions favouring a correct identification.
Evidence - Identification of accused person - Witnesses saw appellant for the first time during the incident - Need to describe identity in detail.
D Criminal Practice and Procedure - Sentences - Sentence for robbery with violence - Arm used during commission of offence - Accused sentenced as if charged with armed robbery.
-Headnote
E On being convicted of the offence of robbery with violence by the District Court the appellant was sentenced to thirty years imprisonment as if he had been charged with armed robbery under Act 10 of 1989. The conviction of the appellant was based on evidence of identification. The trial court was satisfied that the appellant was adequately identified by five witnesses all of whom had seen the appellant for the first time during the incident. None of the witnesses was able to describe in detail F the identity of the appellant. The appellant was also identified in an identification parade in which requisite procedures were not followed. The High Court of Tanzania dismissed the appellant's appeal. On a further appeal to the Court of Appeal of Tanzania.
G Held:

(i) It is elementary that in a criminal case whose determination depends essentially on identification, evidence on conditions favouring a correct identification is of the utmost importance;

H (ii) As the identification of the appellant was the crux of the matter, and having regard to the fact that the robbery took place at 8.00 pm when it was dark, we are satisfied that the conditions were not favourable for a correct identification of the appellant;

(iii) Since all the witnesses admitted seeing the appellant for the first time during the incident that day it was necessary in their evidence of identity to describe in detail the identity of the I appellant when they saw him at the time of the incident;

1994 TLR p101

(iv) The identification parade was not carried out properly in terms of the applicable procedure; A as such it was of little value as evidence against the appellant;

(v) After the passing of Act 10 of 1989 the offence of armed robbery is distinct from, though cognate to, robbery with violence; it should be clearly spelt out in the charge;

(vi) The omission to particularize the offence of armed robbery in the statement of offence can B only be cured if the charge in the particulars of offence clearly spells out the use of arms.

Case Information

Appeal allowed.

Cases referred to: C

(1) Mohamed Alhui v Rex [1942] 9 EACA 72.

(2) Rex v Mwango s/o Manaa [1939] 3 EACA 29.

Kakoti, for the appellant.

Sengwaji, for the respondent. D

[zJDz]Judgment

Lubuva, JA, delivered the following considered judgment of the court:

In the District Court of Ilala District at Kivukoni, the appellant was charged with and convicted of the offence of robbery with violence contrary to ss 285 and 286 of the Penal Code. He was sentenced to E imprisonment for thirty years and twelve strokes. On appeal to the High Court, (Mapigano J) his appeal was dismissed. Dissatisfied with the decision of the High Court, he has appealed to this Court.

The facts of the case which emerge from the evidence were briefly as follows: That on 11 December 1989 at about 8 pm the house of one Athumani Rajabu was invaded by a group of bandits one of F whom had a firearm. In the process of this robbery, various household items (including cash money, Shs 500,000/=) the total value of which was Shs 530,000/= were stolen. The group of bandits, comprised four people. It was only the appellant who was arrested and duly charged for the offence G of robbery with violence. The rest of the bandits vanished and could not be traced for their arrest and trial.

At the time of filing the memorandum for this appeal, it would appear that the appellant had not briefed Counsel for arguing his appeal. The memorandum of appeal was therefore processed and H filed by the appellant himself with the usual assistance of the prison officials. However, at the hearing of the appeal before us, Mr Kakoti, learned advocate, appeared for the appellant. Arguing the appeal before us, Mr Kakoti, based the appellant's defence on the following grounds: I

A 1. That both the two courts below erred in basing the conviction of the appellant on the evidence in which there was no proper and sufficient evidence of identification.

2. That the identification parade was of no evidential value as it was not properly conducted.

B 3. That as the appellant was charged with the offence of robbery with violence and not armed robbery, he was wrongly sentenced to 30 years imprisonment.

On the basis of these grounds, Mr Kakoti, in a very persuasive manner, assailed the learned judge's C decision in upholding the conviction against the appellant. It was a case which, in his submission, wholly depended on the evidence on identification. The evidence adduced by the

prosecution on the identity of the appellant at the time was too scanty to found a conviction. He contended that even D though it is common ground that matters of assessing the demeanor of the witnesses is the responsibility of the trial court, in the instant case, the very evidence of the witnesses PW1, PW2, PW3, PW4, PW5 and PW6 which was believed and accepted by the Trial Magistrate, was not reliable. According to him, from their evidence, they had seen the appellant for the first time on the E day of the incident. That was 11 December 1989. For this reason, he submitted that, having seen the appellant for the first time that day and the offence having taken place at night, it was necessary for these witnesses to describe how they identified the appellant. As such details were missing from the F evidence of these witnesses, it was unsafe to sustain a conviction based on this evidence Mr Kakoti contended. For this contention, he relied on the decision of the Court of Appeal for Eastern Africa in the case of Mohamed Alhui v Rex (1).

G Secondly, Mr Kakoti, learned advocate submitted that the learned judge erred in law by not subjecting the evidence on the identity of the appellant to a close scrutiny. He argued that as the evidence on the identify of the appellant was highly unsatisfactory, it was necessary to have it H re-evaluated by the first appellate Court. In his view, PW1, PW2, PW3, PW4, PW5 and PW6 in their evidence do not describe in any way how they identified the appellant at the time of the robbery. He said that no description has been given in regard to the lighting condition, the type of clothing the appellant was wearing or his physique etc. It was his submission that this evidence was of little evidentiary value as it was lacking in details on identity. Mr Sengwaji, learned Principal State Attorney I who appeared for the

Republic supported the conviction. He conceded that except for PW2, the rest of the witnesses had A seen the appellant for the first time that day when the incident took place. Furthermore, while also conceding to a number of issues raised by Mr Kakoti, learned Counsel for the appellant, Mr Sengwaji maintained that the decision of the learned judge on first appeal and the Trial Magistrate was proper. B He argued that despite the discrepancies in the evidence of the prosecution, the appellant was properly identified. He further observed that as there was light at the time which was later switched off on the instruction of one of the bandits, the witnesses had the opportunity of seeing and identifying the appellant. C

As regards the identification of the appellant we are with respect, in agreement with the learned Counsel for the appellant, Mr Kakoti that this is a case where determination wholly depends on the evidence on the identity of the appellant. In our view, it is elementary that in a criminal case where D determination depends essentially on identification, evidence on conditions favouring a correct identification is of the utmost importance. In the instant case, except for PW4 who, apart from having seen the appellant earlier that day at 4 pm but did not actually directly see what happened at 8 pm E during the incident, all the other witnesses either in examination in chief or in cross examination admit seeing the appellant for the first time during the incident that day. For that reason, we think it was necessary in their evidence on identity to describe in detail the identity of the appellant when they saw him the time of the incident. Here, this was not the case with the evidence of either of these F PW1, PW2, PW3, PW5 and PW6. In our

view, their evidence, regrettably, is of a generalised nature on the identity of the appellant. It is mere assertion that they saw the appellant.

In his defence, the appellant among others, advanced the argument that Athumani Rajabu, the owner G of the raided house owed him (appellant) money and that there was bad blood between the appellant and the family of Athumani Rajabu. He claimed he was known and familiar with most of the prosecution witnesses. In the first place, we note, this issue was never raised at the time the H witnesses were testifying. Nonetheless, in our view, even if this theory is accepted, it makes it even much easier in practice for them to describe the appellant in more particulars in regard to the identification than it is to a stranger. Here, these witnesses deny knowing the appellant before the incident. None of the witnesses (PW1, PW2, PW3, PW4, PW5 and PW6) as well as the police I officers

A involved in the investigation of the case or the identification parade, (PW7 and PW8) given any description in their evidence as to how the appellant was identified.

The importance of proper and correct identification in cases whose determination hinges on identification was reiterated by the Court of Appeal for Eastern Africa way back in 1942. In the case of B Mohamed Alhui v Rex (1) it was held that:

> `In every case in which there is a question as to the identity of the accused, the fact of there having been a description given and the terms of that description given are matters of the highest importance of which evidence C ought always to be given; first of all, of course, by the persons who gave the description and purport to identify the accused, and then by the person or persons to whom the description was given'.

D On the basis of this well enunciated principle, in criminal cases, we are convinced that the offence having taken place at night, the condition prevailing at the time can hardly be said to be favourable for a correct identification of the appellant. Granted the appellant was seen at the scene earlier in the day at about 4 pm as the evidence of PW2 shows, the crucial moment for identification was at the time E when the offence was committed at 8 pm when it was dark. The evidence on this, in our view, still left much to be desired.

Mr Kakoti, learned counsel for the appellant also took issue with the manner in which the F identification parade was conducted. He submitted that the identification parade having been conducted in such an unsatisfactory manner, it was of little value as evidence against the appellant. He referred to the case of Rex v Mwango s/o Manana (2) in which the rules for guiding identification G parades were fully set out and approved by the Court. It was his submission that proper procedure was not followed in conducting the identification parade. From the evidence on record, it is evident that even though PW7 in cross examination says that he conducted the identification parade, in actual fact, it was PW8 who was involved in the identification parade. For the identification parade, H PW8 included 9 other people and the appellant. The evidence does not show how the identifying witness (PW2) had identified the appellant eg by touching etc. It is also not indicated if PW2 was given the option to indicate if he wanted to see those taking part in the parade walk; or hear them talk etc. On the other hand,

Hassan Jumbo (PW2) the witness who was supposed to identify the I appellant at the identification parade does not say anything at all about the identification
1994 TLR p105
LUBUVA JA
parade and how he did it. Furthermore, from the evidence of PW8 and PW2, it is not clear if the A appellant was asked if he was satisfied that the parade was conducted in a fair manner. In those circumstances, it appears to us that the identification parade was not carried out properly in terms of the applicable procedure as set out in the cited case of Mwango (supra). B
Thirdly, Mr Kakoti, learned Counsel complained about the investigation and the arrest of the appellant. He contended that it was curious that the offence took place on 11 December 1989, but it took so long for the appellant to be arrested, on 5 April 1990. According to him this is the day when C the appellant had gone to the house of the complainant. Mr Kakoti further contended that such lapse of time without explanation raises doubts against the prosecution case.
We have examined this matter clearly. From the evidence of Hassani Jumbo (PW2) it is clear that D after the house had been invaded, he (PW2) ran to the house next door to inform the neighbours and the owner of the house Athumani Rajabu who in turn went to inform the police. If the police were informed of this serious incident of robbery, it is not shown what time the police came to the scene of crime. The record is completely silent on this vital aspect. The investigating officer, Stanley (PW7) E only talks of 5 April 1990 when he arrested the appellant at the complainant's house (Athumani).
Another Police Officer, Inspector Patric Byatao (PW8) in his evidence also comes into the picture from 21 May 1990 when he conducted the identification parade. In this state of affairs, we think, the F investigation was, with respect, poorly conducted. The end result is that it is not certain when the incident was reported to the police; who reported and why it took so long before the appellant was apprehended on 5 April 1990. If the explanation is that the appellant disappeared after the incident, in G our view, it is equally unlikely that the appellant would present himself at the very house, the scene of crime risking himself the arrest which he had been avoiding.
All in all therefore, as the identification of the appellant was the crux of the matter, and having regard H to the fact that the robbery took place at 8 pm when it was dark, we are satisfied that the conditions were not favourable for a correct identification of the appellant. In these circumstances, proof of the identity of the appellant was in our considered opinion, such that the possibility of I mistaken identity could not be eliminated. Furthermore, from the
1994 TLR p106
LUBUVA JA
A evidence as already explained, we are convinced that the identification parade was conducted in an unsatisfactory manner. Above all, it is also clear to us that the manner in which the investigation of the case was conducted by the police was such that it leaves much to be desired, it was poor to say B the least. It leaves a lot of loose ends untied. With respect, these are matters which apparently were not addressed to by both the courts below. Had they been considered, the decision would, in our opinion, have been different.

There remains the question of the sentence and the charge on which both Mr Kakoti, learned C Counsel and Mr Sengwaji, learned Principal State Attorney briefly addressed us. Mr Sengwaji conceded that it was wrong to indicate Athumani Rajabu as the victim of the robbery. With respect, we agree with Mr Sengwaji. On record, Athumani Rajabu was not present at the time when the incident took place. It was therefore, an error to show him in the charge as the victim. However, an D error though it was, we think it was such that it was curable under s 388 of the Criminal Procedure Act, 1985.

As regards the sentence imposed, Mr Kakoti, learned Counsel for the appellant submitted that as the E appellant was charged with the offence of robbery with violence contrary to ss 285 and 286 of the Penal Code, for which the penalty provided for under s 286 of the Penal Code is twenty years imprisonment, the provisions of Act 10 of 1989 which could not apply in this case. According to Mr F Kakoti, the penalty of thirty years is for a graver offence than that preferred against the appellant. With respect, this Court has held in a number of cases that after the enactment of Act 10 of 1989 the offence of armed robbery is distinct though cognate to robbery with violence. It should be clearly spelled out in the charge. Otherwise, the omission to particularize such an offence in the statement of offence can only be cured if the charge in the particulars of offence, clearly spells out the use of G arms as was the case in the present case.

Consequently for the reasons stated, we allow the appeal, quash the conviction and set aside the sentence and order that the appellant be released from prison forthwith unless he is otherwise H lawfully held.

1994 TLR p107

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[zRPz]JEWELS & ANTIQUES (T) LTD v NATIONAL SHIPPING AGENCIES CO LTD 1994 TLR 107 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Makame JJA, Mnzavas JJA and Mfalila JJA

REVISION NO. 26 OF 1994 B

5 December, 1994

(From the decision of the High Court of Tanzania at Arusha, Munuo, J) C

Flynote

Civil Practice and Procedure - Correction of errors - Clerical and arithmetical mistakes in judgments, decrees and orders, arising from accidental slip or omission - Whether application to correct such mistakes is subject to the law of limitation - Item 21 First Schedule to the Law of Limitation Act 1971 and s 96 of the Civil Procedure D Code 1966.

Civil Practice and Procedure - Clerical and arithmetical errors - Application to correct such errors - Application to amend decree so as to include compensation for inflation and devaluation - Whether an application for E correction of clerical and arithmetical errors.

Court of Appeal - Revisional jurisdiction of the Court of Appeal - Whether a party may pursue and use the revisional jurisdiction of the Court even after filing Notice of Appeal - Section 4 of the Appellate Jurisdiction Act F 1979, as amended by Act No 17 of 1993.
-Headnote
After obtaining judgment and decree in the High Court the applicant applied to the same court for review of the decree `to correct the errors apparent on the judgment and decree'. The High Court G rectified the judgment and decree as prayed. Almost a year later the applicant again applied to the High Court, under s 96 of the Civil Procedure Code 1966, for the decree to be further amended to include `payment of compensation for inflationary and devaluation element as at the date of settlement in full'. This application was dismissed. The applicant filed a Notice of Appeal against that H dismissal and, as the intended appeal could only be made with leave, the applicant also applied for leave to appeal. This application for leave was also dismissed by the High Court. The applicant then applied to the Court of Appeal for Revision. At the hearing a preliminary issue was raised that the application was time barred. I
1994 TLR p108
A Held:
(i) As per s 96 of the Civil Procedure Code 1966, clerical and arithmetical mistakes may be corrected at any time; applications to correct the same, therefore, are not subject to any limitation of time;
(ii) This application, which seeks to further amend a decree so as to include payment of B compensation for inflationary and devaluation elements, is not one for correction of clerical and arithmetical errors envisaged by s 96 of the Civil Procedure Code 1966; this application, therefore, is subject to the law of limitation and in the event it has been made out of time;
(iii) The applicant's right to appeal to the Court of Appeal was effectively blocked when its C application for leave to appeal was dismissed; upon that dismissal the applicant became entitled to resort to the revisional jurisdiction of the court of Appeal.
Case Information
Application struck out.
Case referred to:
D (1) Luke Mepaachi Mollel & Ten Others v Losiyo Ngeseyan, CAT-Civil Appeal No 8 of 1993 (Unreported).
Miss Bigeye, for the respondent.
[zJDz]Judgment
E Mfalila, JA, delivered the following ruling of the court:
The applicant company M/S Jewels & Antiques (T) Limited, filed in this court what they called a Memorandum of Revision in which they asked this Court to revise the proceedings, judgment and order of the High Court Arusha in Misc. Civil Application No 57 of 1993. We think it is in the interests F of clarity if we set out the background or short history of these proceedings.
The present saga started in 1984 when the applicant company filed Civil Case No 51 of 1984 in the High Court at Arusha against the respondent company claiming damages and various other

reliefs G for breach of contract involving the shipment of goods to Hong Kong. The case proceeded ex-parte and at the end, an ex-parte judgment was entered in favour of the applicant, subsequently the relevant decree was drawn up. However, the applicant company appears to have been dissatisfied H with the format and content of the decree as according to it the judgment and decree were `not in consonance with the relief prayers of the applicant in his (sic) plaint and oral evidence in court'. The applicant accordingly filed in the High Court at Arusha Misc Civil Application No 14 of 1991 in which it applied for a review of the judgment and decree `to correct the errors apparent on the judgment and decree handed down in Civil Case No 51 of 1984'. The learned judge who heard and determined Civil I Case

No 51 of 1984 reviewed the proceedings, judgment and decree in that case and having done so, A rectified the judgment and decree as prayed. An order embodying the terms of the varied decree was drawn up. This was on 29 May 1992. The matter ought to have rested there, but this was not to be for a year later on 6 April 1993, the applicant filed yet another application this time under s 96 of the B Civil Procedure Code. This was Misc Civil Application No 57 of 1993 in which it made the following prayers:

`That the decree in Civil Case No 51 of 1984 dated is further amended to include "payment of compensation for inflationary and devaluation element as at the date of settlement in full".' C

In his affidavit in support of this application, the managing director of the applicant company, Mr Komba, stated that this prayer had not been granted in Misc Civil Application No 14 of 1991 due to D accidental omission or slip and that this accidental omission has seriously affected the economic future of the applicant. At the conclusion of the hearing of the application, the same learned judge dismissed it saying that the decision on this prayer had not been omitted accidentally or otherwise in Misc Civil Application No 14 of 1991. On the contrary, she said, the Court had made a specific finding E by which the prayer was struck off for lack of supporting material. In the circumstances, she said, as far as this matter was concerned she was functus officio.

Following this ruling and order, the applicant filed a notice of appeal on 2 July 1993 stating that it F intended to appeal against the decision and Order of the High Court in Misc Civil Application No 57 of 1993. As no doubt the applicant could not appeal to this Court against such an order as of right, it filed an application for leave to appeal. This application was heard and dismissed by Mroso J on 29 G October 1993. With the appellate avenue to this Court thus blocked, the applicant company filed this application asking this Court to exercise its revisional jurisdiction and revise the ruling and Order of the High Court in Misc Civil Application No 57 of 1993. In the present application for revision, the H applicant contends that in the proposed revision, it will be urged among other things that `Section 96 of the Civil Procedure Code was applicable to this case and that the judge ought not to have refused to grant the relief sought particularly so when she had granted bank interest in the application for review which relief she had not granted in the main suit'. I

At the hearing of this application, the respondent company
1994 TLR p110
MFALILA JA
A through its advocates filed a notice of motion raising a preliminary objection that this application was incompetent and that therefore it should be dismissed. In support of this preliminary objection, Miss Bigeye learned Counsel for the respondent company, argued a number of grounds.
B Her first point was that Misc Civil Application No 57 of 1993 was time barred as it should have been brought within 60 days as provided under item 21 of the First Schedule to the Limitation Act and that therefore the present application being based on a void ruling and order is itself incompetent and should be struck out.
C In reply Mr Komba managing director of the applicant company said that s 96 of the Civil Procedure Code under which the application was brought does not set down a time limit, it provides that such corrections can be made at any time. This section provides as follows:
D `96. Clerical or arithmetical mistakes in judgements, decrees or orders or errors arising therein from any accidental slip or omission may at any time be corrected by the Court either of its own motion or on the application of any of the parties.'
E But Miss Bigeye contended that the phrase `at any time' should be read to mean `at any time' within the limitation period.
On our part we are satisfied that the phrase `at any time' means just that, `at any time'. Subject to F the rights of the parties, there should be no point in limiting the time in which to correct such innocuous mistakes or errors which are merely clerical or arithmetical with absolutely no effect on the substance of the judgment, decree or order. Hence if what was sought in Misc Civil Application No 57 of 1993 was merely to correct clerical or arithmetical mistakes arising from an accidental slip G or omission, we agree with Mr Komba that such correction can be made at any time subject as we have indicated to the rights of the parties.
This brings us to Miss Bigeye's next point, namely on the status of Misc Civil Application No 57 of H 1993. Did that application seek merely to correct clerical or arithmetical mistakes in the judgment and decree handed down in Civil Case No 51 of 1984 so that it was properly brought under s 96 of the Civil Procedure Code?
Miss Bigeye contended that Misc Civil Application No 57 of 1993 could not properly be brought under s 96 of the Code because it does not seek merely to correct clerical or arithmetical errors caused by I accidental slip or omission, it in fact seeks to alter the main
1994 TLR p111
MFALILA JA
substance of the judgment and decree in Civil Case No 51 of 1984 hence it is subject to the A Limitation Act.
On his part, Mr Komba submitted that the application in Misc Civil Application No 57 of 1993 was properly brought under s 96 hence the applicant was free to bring it at any time.
Section 96, which we have quoted in full, is quite clear in its import. It provides that clerical or B arithmetical mistakes in judgments, decrees or orders arising from accidental slip or omission

may be corrected at any time either by the Court on its own motion or on the application of any of the parties. In Misc Civil application No 57 of 1993 the applicant applied for the following order that the decree in Civil Case No 51 of 1984 be `further amended to include payment of compensation for C inflationary and devaluation elements as at the date of settlement in full'. This inflationary and devaluation element is calculated at Shs 58,577,888/=. By any description, this cannot be correcting a mere clerical or arithmetical mistake in the judgment and decree in Civil Case No 51 of 1984. If D granted, the original decretal amount would be inflated by Shs 58,577,888/=. Indeed the applicant avoided using the word `correcting' in its application, the wording `further amended' was used implying that the exercise envisaged involved far more than mere correcting of clerical or arithmetical E mistakes. It involved something which was bound to affect in a very profound way the original judgment and decree. Such an application cannot be fitted in s 96. At the lowest it could be an application for review which under item (3) of Part III of the First Schedule to the Limitation Act should be brought within thirty days. Misc Civil Application No 57 of 1993 was filed in Court almost a year F after the judgment and decree in Civil Case No 51 of 1984 was handed down. It was therefore quite clearly out of time. It was time barred and the learned judge should not have proceeded to hear it without enlarging the time. As we stated in Luke Mepaachi Mollel & 10 Others v Losiyo Ngeseyan - Civil Appeal No 8 of 1993, `the High Court order based, as it was, on the consideration of the invalid G application was itself a nullity and the purported appeal to this Court arising from such a nullity is obviously misconceived and hence incompetent'. Similarly, since the present application arises out of the High Court order in the invalid Misc Civil Application No 57 of 1993; is obviously misconceived H and incompetent and on this ground the preliminary objection must succeed.

Miss Bigeye had two other grounds. She said that since the applicant filed a notice of appeal, it cannot at the same time pursue and use the revisional jurisdiction of this Court. We are satisfied

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A that this ground is misconceived. As we have indicated earlier in this judgment, the applicant resorted to the revisional jurisdiction of this Court when the appellate door was blocked by the dismissal of his application for leave.

B Lastly, Miss Bigeye contended that this Court has no jurisdiction to revise proceedings in cases decided before 1 January 1994 when the Court was invested with revisional jurisdiction by the Appellate Jurisdiction (Amendment) Act 17 of 1993. But since we have already sustained the preliminary objection on some other ground, we do not feel it is necessary to make a decision on this point.

C For these reasons we uphold the preliminary objection and strike out this application as being misconceived and incompetent. We also make an order for costs in favour of the respondent.

E

Court Court of Appeal of Tanzania - Dodoma
Judge Kisanga JJA, Omar JJA, and Mfalila AgJA

CRIMINAL APPEAL NO. 68 OF 1987 F
13 March, 1989
(Appeal from the Conviction of the Economic Crimes Court at Dodoma, Ruhumbika, J)
Flynote
G Criminal law - Theft - Doctrine of recent possession.
Criminal Practice and Procedure - Failure to file a notice of appeal in accordance with Rule 61(1) of the Court of Appeal Rules 1979 - Whether appeal is competent.
H Evidence - Defence of alibi - Whether conviction and sentence were valid in law.
-Headnote
The five appellants were charged with and convicted of cattle theft by the Economic Crimes Court. The court sentenced the second and fifth appellants to fourteen years imprisonment and the first appellant to seven years imprisonment `on account of advanced age'. The fifth appellant had jumped bail before trial and was tried and sentenced in I
1994 TLR p113
absentia under ss 37(4)(b) and 49(1)(c) of the Economic and Organised Crime A Control Act No 13 of 1984. When this appeal was filed before the Court of Appeal he was still absent.
Held:

(i) Where no sufficient efforts have been made to submit a culprit who was tried in absentia to the process of the court, the Court of Appeal cannot B exercise its discretion to allow an appeal out of time, to do so would be a mockery to Court Orders and might give an impression to the public that there are no obligations to sign bonds;

(ii) Since the appellants did not file the notice of appeal as provided for under Rule 61(1) of the Court of Appeal Rules, 1979, this appeal is incompetent; C

(iii) The trial court did not err in exercising its discretion with regard to the appellants defence of an alibi, thus they were rightly convicted;

(iv) The process of sentencing is not a mechanical function but that calling for the utmost mental effort to ensure that the sentence imposed not only fits the offence but also the offender; in this case it was in the interest of justice to impose a shorter term of imprisonment to the first appellant than that meted to his younger colleagues. D

Case Information
Appeals dismissed.
No cases cited. E
Mbezi, for the appellants.
Benne, for the respondent.
[zJDz]Judgment
Mfalila, AgJA, delivered the following judgment of the court:

The five appellants were charged with and convicted of cattle theft in the F Economic Crimes Court sitting at Dodoma and presided over by Mr Justice Ruhumbika. Upon their convictions the court sentenced appellants two to five to fourteen years imprisonment and the first appellant to seven years imprisonment `on account of his advanced age'. He is over seventy years old. The fifth appellant G Jared Machilika alias Mnyalifa was tried in absentia under the provisions of ss 37(4)(b) and 49(1)(c) of the Economic Crime and Organized Crime Control Act No 13 of 84. In this appeal the fifth appellant was still absent, he has not been arrested since he jumped bail before trial. However all the appellants are challenging both their convictions and sentences. H

The summary of the facts in this case is as follows: The complainant Ernest Majebele (PW1) is a big time cattle owner at Handali Village in Dodoma rural District. On 5 September 1985 at about midnight, a group of cattle thieves invaded his cattle boma and while they were in the act of driving away the cattle, he woke up I

A and in the company of three other male members of his household went out to see what was happening. They tried to follow and confront the thieves. The moon was shinning so the complainant was able to recognize one of the thieves as his neighbour the fifth appellant. But when the thieves threatened to shoot them if they persisted in following them, they retreated and returned home. The following B morning they decided to follow the hoof and foot prints, those went on for a whole day until the marks disappeared at a place where it was obvious the animals had been loaded onto a truck. Suspecting that the cattle had been taken to Dar es Salaam, the complainant and his companions decided to travel to Dar es Salaam C where they combed the cattle markets at Pugu and Kimara. On 9 September 1985 the complainant saw and identified six head of cattle at Kimara abbatoir to be his stolen animals. He seized the animals with the assistance of a policeman on duty (PW5) and had the herdsman arrested. The herdsman explained that the D cattle belonged to one Joseph Chipilipili (PW2) who in the meantime had had the thieves arrested when they tried to sell the cattle to him. The arrested thieves are the present appellants and the fifth appellant who absconded. They were all taken to Magomeni Primary Court and charged and later transferred to Dodoma to face this charge. E

The defences of appellants two to four who are brothers were similar in so far as their reasons for travelling to Dar es Salaam at that particular period was concerned - namely that they travelled to Dar es Salaam not for the purpose of F taking the stolen cattle as alleged by the prosecution, but to go and look for the relatives of the wife or concubine of the second appellant, the wife who had just died at Dodoma. The first appellant said that he travelled to Dar es Salaam to visit his son Job Chilimba and that he took advantage of travelling with the Ndumizi G brothers, the other appellants, because he had never been to Dar es Salaam before. They all denied taking part in the theft of the complainant's cattle saying that they were elsewhere when it happened. The first appellant said he was at his home at Ihumwa Village, the second appellant that he was at Makole at the house of Rashidi Kasuga (DW5) tending his wife Adija, who was then admitted at H Dodoma Hospital. The third appellant said he was at home at Ihumwa and later went to Dodoma on hearing of the death of his sister-in-law. The fourth appellant said that

he was on duty at Mirembe Hospital where he works as a watchman. With regard to the time and place of their arrests, they explained that they were arrested at the house of Joseph Chipilipili I
1994 TLR p115
MFALILA AgJA
after Chipilipili himself had invited them to his home when they met him at A Kariakoo. They added that Chipilipili must have arranged for their arrest to save himself as the stolen cattle had been found with his herdsman at his home.
The trial court rejected those explanations and alibis. The court chose to believe the prosecution case to the effect that the appellants were found with the stolen B cattle in Dar es Salaam on 9 September 1985, four days after the theft, and applying the doctrine of recent possession they were deemed to have stolen them.
In this appeal Mr Mbezi who appeared for the appellants argued six grounds of appeal, grounds five and six being on sentence. However when Mr Benne rose to C answer the appeals on behalf of the respondent Republic, he challenged the competency of the fifth appellant's appeal on the ground that he did not file any notice of appeal in accordance with Rule 61(1) of the rules of this Court. In the circumstances, he said, there is no appeal before this Court in respect of this appellant. Mr Mbezi conceded the point but asked us to exercise our discretion in D the matter and grant extension of time to the fifth appellant in which to file his notice. We think Mr Benne's objection is well taken. The notice dated 14 May 1987 is only in respect of the four appellants. Accordingly the fifth appellant did not comply with the provisions of Rule 61(1) of the Court of Appeal Rules, his appeal is therefore incompetent and we strike it out. E
With regard to Mr Mbezi's application for the extension of time, we think this would have been a proper case to use our discretion in favour of the fifth appellant if he had submitted himself to the process of this Court. We hold this view because we think he was improperly tried in absentia. We do not think sufficient effort was F made to trace him to compel his attendance as required by the section ie s 37(4)(b) of the Economic Crime and Organized Crime Control Act 13 of 1984 which allows trials to proceed in the absence of accused persons. The court made specific orders in respect of both the absconding fifth appellant and his G sureties before the trial started, but to date no visible efforts seem to have been made to give effect to this order. We think this situation is very unsatisfactory, it makes a mockery of court orders and gives the unfortunate impression to the public that there are no obligations attached to signing surety bonds. In other H words it is an empty ceremony. We ask the High Court which granted bail to take immediate action against both the fugitive fifth appellant and his sureties. We cannot in these circumstances exercise our discretion in favour of one who has abused the judicial process. I
1994 TLR p116
MFALILA AgJA
A Ground 2 of the appeal can easily be disposed of. In this ground, Mr Mbezi complained that the Trial Judge erred in law in failing to obtain the opinions of the lay members who sat with him and also in failing to sum up the case to them. We think this complaint confuses the role of

lay members in an Economic Crimes B Court and Assessors in the ordinary sitting of the High Court. Unlike the ordinary sitting of the High Court, the decisions of the Economic Crimes Court are either by majority or unanimity, there is therefore no need to sum up the case to the Lay Members and obtain their opinions. In this case as the judgment makes it so clear, the decision was unanimous. We therefore see no merit in the complaint in this ground. C

In ground 3 Mr Mbezi complained that the trial court erred in holding that thirty not six head of cattle were stolen from the complainant. At the hearing of the appeal, Mr Mbezi argued that the evidence on record supports a finding of six head of D cattle having been stolen not thirty and that the complainant inflated the figure in his later reports to gain more advantage. In the very first statement which the complainant made to the police, he said that on checking soon after the theft, he found that six head of cattle had been stolen, but he changed this number to thirty E in his subsequent statement. He tried to explain this discrepancy saying that he first mentioned the number six because he had seen six of his stolen cattle at Kimara. This explanation contradicts the very clear language he used in his first statement. He said:

F `Nilipoanza kuhosabung'ombe hae nikagundua kwamba ng'ombo sita wamoibiwa ambaoini ni madume mawili majike wanne' . . .

G In other words he said `when I started to count the cattle, I discovered that six head of cattle had been stolen, two bulls and four cows'. In our view nothing could be clearer. Here he was talking about the total number of animals stolen not just those which were found at Kimara abbatoir. We think in the circumstances it H would be safer to rely on the first statement rather than the latter which could have been influenced by considerations of self interest. The trial court's unanimous view that `thirty head of cattle is the correct figure to be taken in preference to six head of cattle' is therefore unsafe. Accordingly we uphold the complaint in this ground and say that during the night six head of cattle were stolen from the complainant's boma.

In ground 4 of the memorandum of appeal, Mr Mbezi sought to I

challenge the whole basis of the appellant's conviction. He complained that the A evidence which was used to convict the appellants being wholly circumstantial, it was wrong for the trial court to reject the alibis of the appellants and convicting them as charged. We would like to state as Mr Mbezi himself conceded in the course of the hearing that it is not correct to say that the evidence against the appellants was wholly circumstantial. There was the evidence of PW1 who saw B and recognised the fifth appellant at the time of the theft. But even the circumstantial evidence which was led was of the strongest kind. For instance there were witnesses who if their evidence is believed as it was, saw the appellants with the stolen cattle only four days after the theft. On the morning of 9 C September 1985 the four appellants went to a city butcher Joseph Chipilipili and offered to sell him six head of cattle. These are the very ones which were identified by the owner PW1. His identification of the head of cattle was not challenged by anyone. Indeed all the appellants did was to deny that the six head of cattle were at D any time in their possession and that PW2 framed them to save himself. This story and as to how they had found themselves at PW2's house where they were arrested was rejected by the

trial court. An attempt was made to make capital out E of the differences in the evidence of PW2 and PW3 regarding the time the appellants had been seen with the cattle at Kimara. PW2 told the trial court that he went to Kimara in the company of the appellants to view the animals at about 8 am. PW3 said this was impossible because he had himself seen the second and F fourth appellants offloading the cattle at Kimara around noon and that these two had offered to sell the cattle to him. We do not know why PW3 said it was impossible for PW2 to have been at Kimara in the morning. The trial court observed that anything could have happened between 8 am when PW2 visited G Kimara and 1 pm when PW3 arrived. We agree. The appellants could have temporarily taken the cattle out of the prying eyes of unwanted people and returned them when the situation was `calm'. In fact there is nothing to suggest why PW2 should have chosen to frame his own innocent guests, people from his own area in Dodoma. We think the trial court rightly accepted his evidence as true. H

The trial court also used the statement (P3) of the dead herdsman one Mandawa to link the appellants to this offence. But Mr Mbezi sought to challenge the admissibility of this statement saying that it was improperly admitted under s 34B of the Evidence Act. We think this statement was properly admitted in evidence under that section because it complies with all the conditions envisaged by the section I

A namely that it is written, its maker could not be called as a witness because he is dead and the matters it contains are relevant facts. The only problem with this document pertains to the weight attached to it. The events it describes appear to have taken place in August, 1985 and it is endorsed to have been recorded on 3 B September 1985. Quite clearly then what it describes cannot refer to the events under investigation because both the events and the recording of the statement took place before the theft in this case on 5 September 1985. The record of trial does not contain any explanation on this anomaly. We therefore decided to C disregard this statement completely. But even without this document we think there was left enough other evidence to support the prosecution case that the appellants took part in the theft of the complainant's cattle.

The trial court rejected the appellants' various alibis, we think rightly. The alibis were introduced in the course of the defence case contrary to what s 41 of the D Economic and Organized Crime Control Act provides. It was thus entirely in the discretion of the trial court to decide what weight if any to give to the alibis. We do not think the trial court erred in exercising the discretion in the matter in the way it did. In the circumstances we are satisfied that the appellants were properly convicted.

E Lastly we shall consider together grounds 5 and 6. In these two grounds the appellants complain that the trial court erred in imposing two different sentences on the appellants and that in any case the sentences imposed on the appellants were excessive.

F We wish to state that the process of sentencing is not a mechanical function. On the contrary it is a function calling for the utmost mental effort to ensure that the sentence to be imposed not only fits the offence but the offender. This is exactly what the trial court sought to

achieve in this case. After a careful G consideration, the trial court concluded that it was in the interests of justice to impose a shorter term of imprisonment to the first appellant than that meted out to his younger colleagues. We endorse this approach in the circumstances of this case where the difference between the age of the first appellant and that of the other appellants is so wide.

H As to the severity of the sentences which were imposed, we would not have been inclined to interfere if we had found like the trial court that thirty head of cattle had been stolen particularly when the fact of the appellants having been armed with lethal weapons is taken into account. But we have found that only six head of cattle were stolen. Would the trial court have imposed the same sentence if they had found as we have that only six and not thirty head of cattle I

were stolen? We do not think so, in any case we are not certain, accordingly we resolve this uncertainty in the appellants' favour. A

For all these reasons we dismiss the appeals of all the four appellants against convictions as well as the appeal of the first appellant against sentence. We allow the appeals against sentences of appellants two to four, and set aside the sentences of fourteen years imposed on them and instead sentence each of them to seven years imprisonment. B

Consequent upon our finding that only six head of cattle were stolen, the order of compensation made in favour of the complainant for the unrecovered twenty-four head of cattle falls away as now all the stolen cattle were recovered. The order of compensation is accordingly set aside. C

E

[zRPz]ANDERSON SOLOMON v REPUBLIC 1994 TLR 119 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Omar JJA, Mnzavas JJA and Lubuva JJA

CRIMINAL APPEAL NO. 42 OF 1993 F
14 February, 1994
(From the decision of the High Court at Dar es Salaam, Bahati, J)
Flynote
Criminal Practice and Procedure - Appeal - Appeals against interlocutory orders - Whether G an accused person may appeal against an interlocutory order.
-Headnote
The appellant was charged with stealing by agent contrary to s 273 of the Penal H Code Cap 16. After the case was mentioned in court on five different dates, a date for hearing was set and hearing proceeded in spite of the appellant's request for an adjournment so that he could attend a funeral.

The appellant also made an application to the presiding resident magistrate to have his case transferred to another magistrate. Dissatisfied with the resident magistrate's refusal to transfer the case the appellant filed an I

1994 TLR p120

A application before the High Court. It was not granted and the High Court ordered the trial to proceed before the same magistrate. The appellant appealed to the Court of Appeal.

Held: It is settled law that in criminal cases an appeal does not lie from an interlocutory order and the application before the High Court should have been rejected with directions to the District Court to continue with the case; accordingly, there is no legal basis upon which to entertain this appeal. B

Case Information

Appeal dismissed: Case remitted to District Court to continue with proceedings.

Cases referred to:

C (1) Alois Kula and Leyandoi Lekoisa v R, CAT. Criminal Appeal No 121 of 1991 (unreported).

(2) Uganda v Lule, [1973] EA 362.

Senguji, for the Republic (Respondent).

[zJDz]Judgment

D Lubuva, JA, delivered the following considered judgment of the court:

Before the District Court of Ilala at Kisutu, the appellant was charged with the offence of stealing by agent contrary to s 273 of the Penal Code. E

From the record, after the case was mentioned in Court on five different dates, it was finally set for hearing on 28 July 1992. This was in spite of the appellant's request for an adjournment in order to enable him to attend a funeral. From 28 July 1992, the hearing of the case started and the prosecution had closed its case. F

The appellant had been addressed in terms of the law regarding his rights in defence of his case. The matter rested there before the District Court.

G On the other hand, the appellant had made an application to the presiding Resident Magistrate Ruhangiza to have the case transferred to another magistrate. The reason advanced for the application to transfer the case was that following on the magistrate's refusal to grant an adjournment, the appellant was apprehensive that the case would not be decided fairly by that magistrate. Dissatisfied with the decision of the presiding magistrate not to transfer the case, H the appellant filed an application before the High Court (Bahati, J). The application was not granted and it was ordered the trial to proceed before the same magistrate. Still dissatisfied with that decision of the High Court, he has now appealed to this Court.

Arguing the appeal before us, the appellant said that it was wrong for the learned judge to refuse his application. He explained that he I

1994 TLR p121

LUBUVA JA

had applied for the transfer of the case to another magistrate for two reasons: A First, the date when the case was heard was initially set for mention. That day he asked for an adjournment but

was refused. Secondly, when the case was set for hearing, he asked for time to prepare himself, this was again turned down by the learned magistrate. For this reason, he claimed, he was convinced that justice B would not be done to him in the case by that magistrate. He therefore thought he had a right of appeal against the decision of the High Court refusing to grant his application.

Mr Senguji, learned State Attorney who appeared for the Republic, respondent in a brief address firmly opposed the appeal. He argued that in the first place, this C matter was wrongly entertained by the High Court. He submitted that as this matter arose from an interlocutory order in a criminal case it is not appealable. He referred to the decision of this Court in the case of Alois Kula and Leyandoi Lekoisa v Republic (1). In that case, Mr Senguji submitted that this Court dismissed the appeal whose facts were similar to the instant case on grounds of incompetence. D

We respectfully agree with the submission of Mr Senguji, learned State Attorney. It is settled law that an appeal does not lie from interlocutory order in criminal cases. That this is the legal position on this matter is evident from the numerous cases E decided by the then Court of Appeal for Eastern Africa and this Court on this point. Among other cases, the Court of Appeal for Eastern Africa in dealing with the case of Uganda v Lule (2) EA 362 held:

> `There is no appeal from orders of the High Court incidental to a criminal appeal but not involving the decision of appeal'. F

And more recently, in the cited case of Alois Kula and Leyandoi Lekoisa (1) No 121 of 1991 (unreported) we held that no appeal lies from an interlocutory order in a criminal case. G

In the case before us, which arose from somewhat similar circumstances, we think with respect, the learned judge heard the application in error. The application should have been rejected with direction to the District Court to continue with the case. In the event of the case ending up with the appellant's (accused) conviction, he (appellant) would be at liberty to appeal against the conviction. In the appeal, it would be open for the appellant to include among other grounds the complaint H against the magistrate's refusal to transfer the case. In dealing with the appeal, the issue of impartiality which the appellant is canvassing before us would be considered accordingly. I

A This being the position of the law on interlocutory orders in criminal cases, there is no legal basis upon which this appeal could be entertained. In the result, the appeal being incompetent, it is dismissed in its entirety. It is further ordered that the case be remitted to the District Court with direction to continue with the B proceedings. The appellant would be at liberty to appeal to the High Court if he should be found guilty of the offence with which he is now charged. In that appeal, the appellant may wish to include his complaint against the magistrate's refusal to transfer the case among other grounds of appeal. C

E

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Omar JJA, Mnzavas JJA and Lubuva JJA

CRIMINAL APPEAL NO. 8 OF 1993
14 February, 1994
F (From the decision of the High Court of Tanzania at Dar es Salaam, Rubama, J)
Flynote
Criminal Law - Self defence - Appellant followed into his house and hurled with obscene abuses and attacked by complainant - Appellant used panga against the aggressor - Whether excessive force used - Sections 18, 18A and 18B of the Penal Code. G
-Headnote
The appellant was convicted of wounding with intent to cause grievous harm and sentenced to five years imprisonment by the district court. The High Court H dismissed his appeal against conviction but reduced the sentence to three years imprisonment. He appealed further to the High Court. The evidence on record showed that the complainant had followed the appellant into the latter's house and hurled obscene abuses at him and his wife, before attacking him in the presence of his (the appellant's) wife. The appellant then used a panga against the aggressor, causing severe head injuries. I
1994 TLR p123
Held: A
(i) In using a panga in his defence the appellant used excessive force and was therefore rightly convicted of the offence of wounding with intent to cause grievous harm contrary to s 222(1) of the Penal Code;
(ii) The circumstances that preceded the attack of the complainant by the appellant were such that they rendered this a case that loudly cried for leniency, the use of a panga by the appellant notwithstanding. B
Case Information
Sentence reduced.
Cases referred to:
(1) R v Hussey [1924] TLR 205.
Rutakyamirwa, for appellant. C
Senguji, for the Republic.
[zJDz]Judgment
Mnzavas, JA, delivered the following considered judgment of the court: D
The appellant, Seif Mohamed Senzagala, was charged with and convicted of wounding with intent to cause grievous harm contrary to s 222(1) of the Penal Code and sentenced to five years imprisonment by the district court.
Dissatisfied with the decision of the district court he appealed to the High Court E which dismissed the appeal against conviction but reduced the sentence of five years imprisonment to one of three years. Still dissatisfied the appellant has come to this Court.

Arguing the appeal before us Mr Rutakyamirwa, learned defence Counsel, submitted that since the High Court (Rubama, J) had found that the attack of the F complainant, (PW1) by the appellant was done in self-defence inside the appellant's room where the complainant had followed him he should have found the appellant not guilty of any offence as the attack was justified in law. In support of his argument the learned Counsel referred us to article 16(1) of the Constitution G of the United Republic of Tanzania and the decision in R v Hussey (1).

In the alternative but without prejudice to the above argument Mr Rutakwamirwa submitted that even if the conviction was to be upheld, (as indeed it was upheld by H the High Court), the circumstances under which the assault was done called for a more lenient sentence than that of three years imposed by the High Court.

The Court was asked to uphold the appeal and order the acquittal of the appellant.

In rebuttal Mr Senguji, learned Senior State Attorney, supported I

A the conviction and the sentence of three years imprisonment. It was argued that the sentence was not so manifestly excessive as to call for reduction by this Court.

When the Court referred the evidence in the district court to the learned State Attorney, he conceded that the complainant was the aggressor who had followed B the appellant into his house. It is also not irrelevant to mention that the complainant hurled obscene abuses to the appellant and his wife before he attacked him in the presence of his (appellant's) wife.

Taking into account this evidence and the provisions of ss 18, 18A and 18B of the Penal Code which say inter alia that: C

> `A person is not criminally liable for an act done in the exercise of the right of self-defence unless "excessive force" is used'.

D We are of the considered view that in using a panga in his defence and thereby causing the complainant to suffer a severe head injury the appellant used excessive force as rightly argued by the learned State Attorney. He was therefore rightly convicted of the offence of wounding with intent to cause grievous harm contrary to s 222(1) of the Penal Code. The appeal against conviction is accordingly dismissed.

E As for the sentence of three years imprisonment imposed by the High Court the learned judge said inter alia before sentencing the appellant:

> `I accept in that vein Mr Rutakyamirwa's submission that the appellant had every justification to defend himself and his property'. F

With that observation by the first appellate Court we respectfully agree; but with even greater respect to the learned judge we are far from being persuaded that taking into account the circumstances that led the appellant to use a panga (as mentioned above) in attacking the complainant called for a severe sentence. G

As rightly argued by the learned defence Counsel had the learned judge sufficiently addressed himself to the circumstances that preceded the attack of the complainant by the appellant he would no doubt have found that this was a case H that loudly cried for lenience the use of a panga by the appellant notwithstanding.

The record shows that the appellant was convicted of the offence on 10 August 1992; and he will by now have served one year and five months imprisonment. We are of the opinion that this is more than sufficient punishment in view of the mitigating factors mentioned above. I
1994 TLR p125
In the event we sentence the appellant to such sentence as will result to his A immediate release from custody. It is so ordered.
1994 TLR p125
C
[zRPz]REPUBLIC v D 4527 D/C ASHERY AND THREE OTHERS 1994 TLR 125 (HC)

Court High Court of Tanzania - Moshi
Judge Mroso J D

CRIMINAL REVISION NO. 4 OF 1994
16 March, 1994
Flynote
Road Traffic Act, 1973 - Definition of a motor-vehicle - Whether a `motor cycle' is a `motor E vehicle' - Section 284 of the Penal Code.
Magistrate's Courts - Revision - Reference to the High Court for revision - Powers of resident magistrate in charge to initiate revision of decision of a district magistrate - Section 44(2) of the Magistrates' Courts Act 1984. F
-Headnote
This was a reference proceeding for revision of a decision of a district magistrate to the High Court initiated by a resident magistrate in charge seeking guidance of the High Court on the correctness of the decision of the district magistrate. The reference was made by the resident magistrate under s 30(2) of the Magistrates' Court Act, 1984. G
Held:

(i) The resident magistrate employed the wrong provision in instituting the reference as s 30(2) of the Magistrates' Court Act, 1984 relates to proceedings originating from the Primary Court and not from the District Court. The proper provision in this matter is s 44(2) of the Magistrates' Court Act, 1984; H

(ii) In matters of revision from a District Court the law does not empower the resident magistrate to open a revision record in his court instead he forwards the subject record together with his report to the High Court for it to consider whether or not to make a revision of the District Court proceedings;

(iii) As the District Court record was not forwarded to the High Court the I
1994 TLR p126
A court is unable to give the requested guidance or make a revision of the decision of the District Court;

(iv) A `motor cycle' is a motor vehicle because it is self-propelled, compared to a bicycle, which is usually mechanically propelled; therefore a motor cycle, being a self propelled vehicle, does not fall under s 84 of the Penal Code.

Case Information

B Revision record is quashed and set aside.

No case referred to.

[zJDz]Judgment

Mroso, J:

C The Senior Resident Magistrate in charge of Kilimanjaro Region has forwarded to the High Court a court record titled:

`In the Court of Resident Magistrate at Moshi Criminal Rev C No 1/94

D C/F Same D/C Cr C No 110/93

D 4527 D/C Ashery

E 5535 P/C Jacob

E 5953 P/C Mugendi

Richard Muhanza.'

E The proceedings in that record are dated 23 February 1994 and were before Mr BM Muilla, SRM in charge with Applicant and Respondent shown as absent. The proceedings are entitled:

`Reference to the High Court Made under Section 30(2) of the Magistrates' Courts Act No 2 of 1984' F

It would appear that there have been criminal proceedings in the District Court of Same in which four accused persons, three of whom are policemen, were charged with the offence of conversion not amounting to theft, contrary to s 284 of G the Penal Code. The four accused person are alleged to have unlawfully converted a motor cycle belonging to CCM to their own use without authority from CCM. In the course of the trial the question was raised whether conversion of a motor cycle is an offence under the section cited in the charge sheet, since it was not a `draught or riding animal or any mechanically propelled cycle of any description or any vessel....' H

I gather from the senior resident magistrate in charge in his reference proceedings that the trial district magistrate ruled that according to the Road Traffic Act, No 30 of 1973, a `motor cycle' is a `motor vehicle' by definition and that having so found, the district magis- I

trate dismissed the preliminary point which had been raised, questioning the A propriety of the charge.

Before I proceed any further, let me point out to the senior resident magistrate in charge that, in the first place, he has employed the wrong section of the Magistrates' Courts Act, 1984 in this reference. Section 30(2) which he employed does not relate to proceedings originating in District Courts. If the learned senior B resident magistrate in charge would care to look again at the provision he will note that it says:

`A resident magistrate in charge may call for and inspect the record of any proceedings under C this Part.... (emphasis added).

The words `this Part' refer to Part III of the Magistrates' Court Act which is on - D

`Jurisdiction and power of, And Appeals, Etc from Primary Court'.

That part starts with s 18 and ends with s 39.

Proceedings in the District Court of Same referred to in the reference do not therefore fall under Part III of the Magistrates' Courts Act, 1984 Original proceedings in District Courts and Courts of Resident Magistrate came under Part IV of the Act and the relevant section would have been s 44(2) of Act. There it is E provided:

`A resident Magistrate in charge may call for an inspect the record of any proceedings in a F district court and may examine the records or registers thereof for the purpose of satisfying himself as to the correctness, legality or propriety of any decision or order and as to the regularity of any proceedings therein; and may, in any case in which he considers that any decision or order is illegal or improper or any proceedings are irregular, forward the record with a report to the High Court in order that it may consider whether or not to exercise its powers of revision' (emphasis added). G

So, in the second place, the senior resident magistrate in charge does not himself open a revision record in his court as he did in this case. Rather, as the words I H have underlined show, he forwards the subject record (that of the District Court) together with his report (regarding that record) to the High Court for that court to consider whether or not revise those District Court proceedings, decision or order believed to be irregular, illegal or improper. In the present matter the District Court record was not forwarded to the High I

A Court. What was forwarded is a record of the Court of Resident Magistrate at Moshi titled Criminal Revision No 1 of 1994. Indeed, the contents in that record were not even revision proceedings as one would have expected but a reference report, albeit under the wrong section of the Magistrates' Courts Act, 1984. Now back to the substance of the record. B

I presume the senior resident magistrate in charge found the proceedings or ruling of the District Court on the question whether the charge which faced the accused persons in Same District Court Criminal case No 110 of 1993 was not correct.

C Unfortunately the District Court record, as I already said, was not forwarded to the High Court and from the report of the senior resident magistrate in charge, I am unable to understand how if the presiding district magistrate found that a `motor cycle' is a `motor vehicle' he would proceed to dismiss the preliminary point raised by the advocate that the charge under s 284 of the Penal Code was D inappropriate. In the absence of the District Court record, therefore, I am unable to give the requested guidance.

Even so, let me hazard to say that a `motor cycle' is indeed a motor vehicle of some sort because it is self propelled, compared to, say a bicycle, which is E usually mechanically propelled. I do not know the state to which the proceedings in the District Court have reached but a motor cycle being a self propelled vehicle, does not fall under s 284 of the Penal Code.

F Since the senior resident magistrate in charge should not have opened a revision record in his court in respect of Same District Court Criminal Case No 110 of 1993, that revision record is quashed and set aside. If the learned senior resident magistrate still needs the opinion of the High Court on the propriety of the proceedings in Same District Court, he should follow the guidance I have given above. G

1994 TLR p129

A

[zRPz]RAJABU KHALIFA KATUMBO AND THREE OTHERS v REPUBLIC 1994 TLR 129 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Mnzavas JJA, Mfalila JJA and Lubuva JJA B

CRIMINAL APPEAL NO. 94 OF 1993

19 April, 1994

(From the judgment of the High Court of Tanzania at Morogoro, Bahati, J) C

Flynote

Evidence - Identification of accused persons - Murder committed at night during a burglary - Whether identification of the accused as the murderers could not have been mistaken. D

-Headnote

The four appellants were tried and convicted of murder and sentenced to death. They appealed against conviction and sentence, arguing that they were victims of mistaken identity. The offence was committed at night in the course of a burglary.

Held:

(i) Although the offence was committed at night, there were two lamps in the E corridor inside the house which facilitated the identification of the offenders;

(ii) The accused were known to the witnesses well before the day of the incident; the witnesses, therefore, were extremely unlikely to mistake them;

(iii) On the totality of the evidence, the Trial Judge was entitled to come to the F conclusion that the appellants were properly identified as among the robbers who terrorised the house on the material night.

Case Information

Appeal dismissed.

No cases referred to. G

Lubulira, for the appellants.

Miss Korosso for the respondents.

[zJDz]Judgment

Mnzavas, JA, delivered the following considered judgment of the Court: H

The four appellants, Rajabu Halifa Katumbo, Salehe Shabani Msebwege, Kibwana Shabani Msebwage and Kigona Iddi Kigoma were tried for murder. They were found guilty and duly convicted. Bahati, J accordingly sentenced them to death. I

A Two grounds of appeal filed on behalf of the appellants were argued for them by Mr Lubulira, learned defence counsel.

Miss Korosso, learned state attorney resisted the appeal.

The following facts which led to the arrest and arraignment of the appellants were not in dispute:

B On 6 April 1990 at Malui village, Kilosa district the house of one Salehe Vindiri was burgled into by bandits who in the course of their nefarious activities shot and killed Salehe Vindiri. They also shot dead one Mkunda Mkunda, a watchman.

C One Mkingila, (PW1), who rented part of the house of the deceased, Salehe Mkingila, in which he was running a shop was also shot and injured; bullets brased his cheek and head. The killings were reported to the police and wheels of investigation led to arrest and arraignment of the appellants and seven other accused who were acquitted. In the High Court the Republic alleged and convinced the trial judge that the appellants were the assailants and that they killed the deceased persons with malice aforethought. D

The trial court relied mainly on the evidence of Salum Mkingila, (PW1) and Siwatu Hassani (PW2) who testified that they saw and recognised the appellants on the fateful night as they were marauding the shop armed with a gun. E

In their defences the first appellant advanced defence of alibi saying that he was sleeping in his house the whole night the killings took place. Likewise the second appellant told the court that he could not have committed the offence as he was on the material day in his house from 6 pm till morning with his wife Suzana. Suzana supported her husband's defence of alibi. F

The third appellant also advanced the defence of alibi and said that on the material date - 5 April 1990 he was at his house from 7 pm till next morning.

G Kigoma Iddi Kigoma, fourth appellant, said he was nowhere near the scene of crime. According to his defence he was at home in Kisokwe village on 5 April 1990. He remained in his homestead from 8 pm till next morning.

H The learned judge considered the defences of the appellants and came to the conclusion that the defence of alibi was not available to any of them. He believed the prosecution witnesses, (PW1 and PW2), that they properly identified the appellants as among the bandits they saw on the material night.

Mr Lubulira, learned defence counsel, vigorously assailed the decision of the High I Court arguing that the killings were committed at night and that it was possible that the two witnesses could

have been mistaken in their identification of the appellants; as conditions favouring A identification were difficult.

It was argued that as there must have been pandemonium while the bandits were burgling the house and shooting indiscriminately it was unlikely that PW1 and PW2 could have been so courageous as to be able to peep from their rooms and recognise the bandits. B

In rebuttal Miss Korosso submitted that although the offence was committed at night there were two lamps, a hurricane lamp and a wick-lamp burning in the corridor of the house through which the bandits passed towards the shop. It was also argued that both the witnesses knew the appellants before the incident; and that PW1 mentioned the names of the appellants to the police which facilitated in their arrest. C

As for the evidence of PW2 who had told the police that he knew two of the bandits by their faces although she did not know their names, Miss Korosso submitted that the witness identified the first and fourth appellants as among the bandits on the material night in an identification parade without any hesitation. D

The learned state attorney was of the view that on the evidence the two witnesses could not have mistaken the identity of the appellants and asked the court to dismiss the appeal. E

After a thorough scrutiny of the evidence we agree with Miss Korosso, learned state attorney, that the totality of the evidence entitled the learned judge to come to the conclusion that the appellants were properly identified by PW1 and PW2 as among the robbers who terrorised the house on the material night. There was F undisputed evidence that all the appellants were well known to PW1 before the killing. There was also undisputed evidence that although the offence was committed at night there were two lamps burning in the corridor inside the house which facilitated their being identified. And what is more PW1 immediately reported to the police what had happened and mentioned the appellants as among the bandits. The report facilitated in the arrest of the appellants. G

Again PW2 also told the police that he recognized two of the robbers on the material night as she had seen them in the village on many occasions before the incident; although she said she did not know their names. That she recognised H two of the bandits on the material night was fortified by her identification of the first and fourth appellants in a police identification parade without any hesitation.

It is also relevant to mention that both witnesses told the court that the first appellant, Rajabu Khalfani Katumbo, I

A was armed with a gun; and when PW1 was cross-examined as to how he recognized the voice of the bandit who told the others `shoot him he is escaping' he replied: `I have known Kibwana (third appellant) for a long time. I knew Kibwana's voice. We used to play sports together'.

B Apparently there was no suggestion leave alone evidence that PW1 and PW2 had reason to tell lies against the appellants so as to cause them their undoing.

It is our view that for evidence to be so consistent the only common denominator, save perjury, must be truth. We are satisfied in our own minds that the possibility C of mistaken identification of the appellants as among the bandits who burgled the house on the material night and killed the two decease was properly excluded by the learned judge.

In the event the appeal is dismissed in its entirety and it is so ordered. D

1994 TLR p132

E

[zRPz]ALI ABDALLAH RAJAB v SAADA ABDALLAH RAJAB AND OTHERS 1994 TLR 132 (CA)

Court Court of Appeal of Tanzania - Zanzibar F

Judge Ramadhani JJA, Mnzavas JJA and Mfalila JJA

CIVIL APPEAL NO. 42 of 1993

13 May, 1994 G

(From the judgment and decree of High Court of Zanzibar at Zanzibar, Mmila, RM/Extended Jurisdiction).

Flynote

H Evidence - Evidence of a spouse - Failure to warn oneself on evidence from a spouse.

Evidence - Credibility of - Witnesses - Whether appellate court can assess credibility of witnesses

-Headnote

The appellant appealed against the decision of the High Court of Zanzibar contending that it was wrong in believing the testimony of the first I

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respondent without taking into account that she was an interested party in the suit, A and that it failed to warn itself that her testimony could be biased in favour of the second respondent, her husband.

Held:

(i) Where a case is essentially one of fact, in the absence of any indication that the trial court failed to take some material point or circumstance into account, it is improper for the appellate court to say that the trial court has come to an erroneous conclusion; B

(ii) Where the decision of a case is wholly based on the credibility of the witnesses then it is the trial court which is better placed to assess their credibility than an appellate court which merely reads the transcript of the record. C

Case Information

Appeal dismissed.

No case referred.

Mbwezeleni, for appellant.

[zJDz]Judgment

Mnzavas, JA, delivered the following considered judgment of the Court. D

This is an appeal against the decision of Mmila, Regional Magistrate, (Extended Jurisdiction), which adjudged the second respondent, Mohamed Burhan Mkelle, the owner of a house build on Plot No 18/25 at Kisima Majongoo area in Zanzibar township. E

In his memorandum of appeal, the appellant, Ali Abdulla Rajab, argued that the Trial Magistrate (Ext Jurisdiction) erred in law in assuming that Plot No 18/25 is the same as Plot No 18/26A and thereby holding against him. F

Secondly, it is alleged that the trial court was wrong in believing the testimony of the first respondent, Saada Abdulla Rajab without taking into account that she was an interested party in the suit. In the third ground the appellant alleged that, and we quote: G

`The learned trial Regional Magistrate erred in law in concluding that the physical change of the suit premises must of necessity be caused by demolition and nothing else'.

Finally the fourth ground of appeal was that the trial court erred in law in concluding H that `undertaking efforts to build a house belonging to ones in law confers one the right of ownership'.

Before we proceed further we would like to mention that when the appeal came up for hearing the first, second and the fourth appellants did not appear despite the fact that they were duly served with notices of hearing. Mr Mbwezeleni, learned Counsel I

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MNZAVAS JA

A for the appellant applied for leave to be heard ex-parte and was allowed to proceed under Rule 105(2) of the Court of Appeal Rules in respect of the first, second and fourth appellants.

Elaborating on the grounds of appeal the learned Counsel argued that the learned Trial Magistrate (Ext Juridiction) failed to warn himself when assessing the evidence of Saada, the first respondent, that her testimony could be biased in B favour of the second respondent who is her husband. It was Mr Mbwezeleni's argument that the trial magistrate's decision was not supported by the evidence before him and asked the Court to set aside that judgment and declare the appellant and his sister, first respondent, the owners of the disputed premises. C

In rebuttal the third respondent, Ahmed Suleiman, who bought the disputed house from the second respondent told the Court that the house the appellant claims to be his property had been demolished by municipal authorities as it had become dilapidated; and that after its demolition the second respondent erected a new D house on the plot which house he later sold to him; third respondent.

In this appeal the following matters were not in controversy:

One, Mwanabaraka d/o Salim owned a house - No 18/25 at Kisima-Majongoo. Mwanambaraka died in 1944 and her house was inherited by her daughter one, E Bimkubwa Ali. Four years later, in 1948, Bimkubwa met her death and the house was inherited by her two children, the first respondent and the appellant. The first respondent, Saada, is married to the second respondent, Mohamed Burhan Mkelle. F

The issue that the trial court had to decide was whether the house bought by the third respondent from the second respondent was the same house inherited by the appellant and the first respondent after the death of their mother as alleged by the appellant; or whether it was a brand new house built by the second respondent G after the house inherited by the appellant

and his sister, the first respondent, had been demolished by municipal authorities as argued by the second respondent.

In his evidence before the Court of first instance the appellant argued that the disputed house was the same house he and his sister, first respondent, inherited H from their mother. It was his testimony that while he was in Nairobi he entrusted the house to his sister to look after it and that he used to repair the house. He also told the Court that on one occasion he gave his brother-in-law, the second respondent, Shs 3000/= to effect repairs on the house. It was his evidence that the house looked new because of repairs on it and I

not because a new house had been built on the plot as alleged by the second A respondent.

In her defence the first defendant denied that the appellant had entrusted the house to her. According to her defence the house the appellant claimed was demolished by the Government because it was in bad shape. B

The second respondent told the Trial Court that after the house which belonged to the appellant had been demolished by the government he applied for a building permit to build a house on the vacant plot. He was issued with a permit and built the house in his name and that it is this house the appellant is claiming to be his property. He denied receiving Shs 3000/= from the appellant for repair of his house. C

According to his defence the appellant was always in financial difficulties and that on one occasion he had to find him a job with Rex Hotel in Dar es Salaam. It was also his defence that on another occasion he advanced the appellant capital to enable him to start business as a fish-monger. D

In assessing the evidence the learned Trial Magistrate said on page two of the typed script of the judgment inter alia: E

> `However, taking the whole evidence into consideration this Court is of a clear view that the assertion of the plaintiff that the house was never demolished cannot stand. Two of his witnesses PW1 and PW2 all ended up conceding that the previous premises were demolished. PW1 Ramadhani Juma, . . . admitted when cross-examined by the attorney of the third defendant that the current house in that place is a modern house, roofed with iron-sheets. He also admitted that all the walls were physically pulled down and replaced by new ones, and that work was undertaken by Mohamed Burhan Mkelle'. F

The learned magistrate also believed the evidence of PW2, Sheha Hadji Ali who G said that document No 1010/1955 dated 14 June 1955 came from his office, the municipal office; and that it showed that the previous premises which stood on Plot No 18/25 was demolished. From the evidence of this witness the document No 7/59 dated 10 January 1959 showed that the plot was cleared and that there was no house on the plot. H

The Trial Magistrate also believed the second respondent when he said the plaintiff did not give him any money for repair of his (appellant's) house. The decision of this case was wholly based on the credibility of the witnesses. The learned Trial Magistrate saw and heard the witnesses as they testified. He was therefore in a I

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A better position to assess their credibility than this Court which merely reads the transcript of the record.

This Court has repeatedly held that where a case is essentially one of fact, in the absence of any indication that the Trial Magistrate/Judge has failed to take some material point or circumstance into account, it is improper for the Court to say that he has come to an erroneous conclusion. B

With respect to Mr Mbwezeleni, learned Counsel for the appellant, the preponderance of probabilities heavily weighed against the appellant. We see no good reason to differ with the finding of the trial court, based as it was, on the credibility of the witnesses. C

In the event the appeal is dismissed.

The respondents to have their costs.

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[zRPz]MOHAMED AMOOR KHALID AND MAHAMOUD AYUB IBRAHIM v AHMED ISSA KHALFANI 1994 TLR 136 (CA)

Court Court of Appeal of Tanzania - Zanzibar

Judge Ramadhani JJA, Mnzavas JJA and Mfalila JJA F

CIVIL REFERENCE NO. 12 OF 1993

13 May, 1994

G (From the Ruling of a single judge of the Court of Appeal of Tanzania at Zanzibar, Omar, JA).

Flynote

Court of Appeal Rules - Application to strike out a notice of appeal for failure to institute the appeal in time - Whether lack of money is a defence. H

-Headnote

The reference was from the ruling of the Court of Appeal by a single judge granting the respondent an application to strike out notice of appeal by the applicants for failure to institute the appeal within 60 days after being supplied with the copy of proceedings. The applicants argued that their failure to institute the appeal in time was due to lack of funds and ignorance regarding the steps to be taken in such circumstances. I

1994 TLR p137

Held:

(i) Lack of funds to institute an appeal within sixty days as required by the A rules is an irrelevant reason in an application to strike out a notice of appeal.

Case Information

Reference dismissed.

No cases referred to. B

[zJDz]Judgment

Mfalila, JA, delivered the following considered judgment of the Court:

This is a reference from the Ruling of Omar, JA in Civil Application No 2 of 1993 in C which the applicant Ahmed Issa Khalfani, the present respondent, sought to have the respondents' notice of appeal struck out. In that application, the applicant alleged that the respondents, Mohamed Amour Khalid and Mahamoud Ayub Ibrahim, the present applicants, had filed their notice of appeal without serving the D same on him and that subsequently they failed to take an essential step timeously ie they did not institute the appeal within the prescribed period. Omar, JA found after scrutinising the records in the respondents' possession that the notice of appeal had in fact been served on the applicant but that the respondents had failed to institute the appeal within sixty days after being supplied with the copy of E proceedings. He therefore granted the application and struck out the notice of appeal.

The applicants were aggrieved by this decision and filed this reference on the basis that they failed to institute the appeal in time because they did not have the F money to meet the costs, and that they came to Court to file the appeal as soon as they acquired the necessary funds.

At the hearing of this reference, both applicants conceded that on the facts there was nothing wrong with the decision of the single judge, but they argued that they G should be allowed to proceed with their appeal because the reasons which prevented them from instituting the appeal on time were beyond their control, in that they lacked the necessary funds to pay for the appeal and they were ignorant of the law as to the steps to be taken in such circumstances. The respondent, no H doubt in view of the applicants' concessions on the correctness of the decision of the single judge, said he had nothing to say.

The reasons which the applicants gave for not instituting the appeal in time, could have been relevant if this were an application for enlargement of time. In this application we are only dealing with I

A the question of striking out the notice of appeal for failure to take an essential step in time. We agree with the findings of the learned single judge that the notice of appeal was served on the present respondent in time and that the application for the copy of proceedings was in writing and was copied to the respondent. But since the proceedings were supplied to the applicants on 28 January 1993, they B should have instituted the appeal within sixty days ie by 29 March 1993. They did not do so until 5 August 1993, almost five months out of time. In these circumstances the learned single judge did not have any other alternative except to allow the application and strike out the notice of appeal. Indeed as we have already C indicated the applicants have conceded as such.

For these reasons we dismiss this reference with costs.

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[zRPz]AMIRI MOHAMED v REPUBLIC 1994 TLR 138 (CA)

Court Court of Appeal of Tanzania - Tanga

Judge Makame JJA, Omar JJA and Ramadhani JJA

CRIMINAL APPEAL NO. 5 OF 1994 F
18 May, 1994
(From the conviction and sentence of the High Court of Tanzania at Tanga, Kileo - PRM/Extended Jurisdiction). G
Flynote
Evidence - Analysis of evidence - Failure to properly analyse evidence - Consequence thereof.
Evidence - Hostile witness - Evidence of hostile witness - Whether such evidence may be used.
Evidence - Corroboration - Circumstantial evidence - Reliability of witness H
Criminal Practice and Procedure - Murder - Motive - Whether motive is necessary to establish murder.
-Headnote
The appellant appealed against conviction and sentence for murder. He challenged the conviction on, inter alia, the ground that the testimony of I
1994 TLR p139
one witness in court differed with the statement of the same witness made to the A police one day after the event; in particular about the sequence of events. Another ground was that the trial court was wrong to disbelieve the reasonable and likely version by the appellant because the Trial Magistrate had made up her mind that the appellant was a liar.
Held: B

(i) All the three versions of evidence given by three different witnesses yielded the same basic message, that the appellant issued threats to the effect that the deceased had done something bad to the appellant for which the deceased would have had to pay on the day he was murdered; C

(ii) The appellant did utter the threats to the deceased and this was a circumstance to be taken into account in considering the guilt or otherwise of the appellant;

(iii) It is improper to use evidence of a hostile witness which has to be thrown out in toto; however in this case there was evidence of the appellant himself that he did instruct the hostile witness to throw away the weapon alleged to have been used for the murder, into a latrine or into a river; D

(iv) Every magistrate or judge has got his or her own style of composing a judgment, and what vitally matters is that the essential ingredients should be there, and these include critical analysis of both the Prosecution and the Defence; E

(v) The conduct of the appellant of disappearing from his abode soon after the event of murder and his explanations show that he was responsible for the murder:

(vi) Although motive is not discernible on the record but motive does not have to be established to bring the charge home. F
Case Information
Appeal dismissed.
No case referred to.

Kavuta, for the appellant.
Bilaro, State Attorney for the respondent. G
[zJDz]Judgment
Makame, JA, delivered the considered judgment of the Court: H
The appellant Amiri Mohammed was condemned to death by Mrs Kiloo, PRM, Extended Jurisdiction, after being found guilty of murdering a woman, variously described as a widow or divorcee, Asha Miraji, at Kilole Village, Korogwe District on 15 February 1991. He is advocated for by Mr Kavuta, learned Counsel, while Mr Bilaro, learned Senior State Attorney appeared for the respondent and urged us to sustain the finding that the appellant is guilty. I
1994 TLR p140
MAKAME JA
A The deceased was stabbed to death some 50 paces from the house of PW4 Vincent Michael and his wife PW2 Harlamu Mkoma who, like PW3 Daniel Komba, said the appellant was one of the people who went visiting at that house that evening. The appellant owned as much, so that was common ground.
B According to PW4, PW2 and PW3, the appellant uttered some threats to the deceased who was also at the house where PW2 was sick. The appellant threatened to get even with the deceased because of some undisclosed uncivil treatment he had been subjected to by the deceased previously. PW4 did not like the commotion in his house so he asked all the visitors to leave. PW4 testified to C leaving the house with the deceased with the appellant behind them. Outside there the appellant resumed the quarrel which the deceased said she did not like, whereupon the appellant seized the deceased by her dress and hit her with something the appellant fished out from his pocket. The deceased cried out that she had been stabbed with a knife while the appellant ran away. D
On behalf of his client Mr Kavuta argued four grounds. First he submitted that PW3's testimony ought not to have been believed and relied on by the trial court because it differed from Exh D1, the statement the witness made to the police one day after the event, in particular about the sequence of events. Going by the statement there was a time when PW3 went away from the deceased, and less E than five minutes later is when PW3 heard the deceased's cries.
Learned Counsel for the appellant also urged that the alleged threats by the appellant inside the house were sheer lies. There were no such threats made and that was why the renderings by the three witnesses were so variant. F
The appellant's advocate's other ground of complaint was that the learned Trial Magistrate erred in finding that the appellant used the bush-knife (Exh 13) to kill the deceased by making use of the evidence of the appellant's daughter PW5 Fatuma Amiri and that of PW6 D/Sgt Hatal. G
Counsel's last ground is that it was wrong on the part of the trial court to disbelieve the reasonable and likely version by the appellant. Counsel also submitted that the Trial Magistrate made up her mind that the appellant was a liar so that even then H she came to consider the appellant's disappearance after the killing she made conclusions without properly analysing the appellant's story.

The appellant's version was that although he did go to the house of PW4 and there found the deceased who left with PW3 ahead of him, there was no trouble at all. He left the place normally but did I
1994 TLR p141
MAKAME JA
not go home. He spent the night at Hanundu in his uncle's house and the following A day he went on to Ngombozi to look for a job. We wish to pause here and observe two things: One that the uncle was not called and two that according to the appellant himself he had an uncompleted masonry assignment which he left to be completed by other fundis. Regarding the panga said to be the murder weapon, the appellant said he did tell his daughter to throw the panga into a latrine or the B river but this was because it had hurt him.
Mr Bilaro, learned Attorney for the Republic supported the conviction. He conceded that PW3's statement to the police differed from what she later told the Court but C he urged us to accept her explanation that at the police station she held back somewhat as she was scared and she had been roughed up. Mr Bilaro also submitted that PW3's identification of the appellant at the scene was worthy of belief. If, however, we thought that that piece of evidence needed corroboration such corroboration was available from three aspects. Those were the threats the appellant uttered to the deceased at the house, the appellant's disappearance for D some days, and the discovery of the murder weapon. Learned State Attorney also pointed out that the evidence of the appellant's daughter was discarded and not used. The learned Trial Magistrate relied rather on the appellant's own evidence and that of PW6. Mr Bilaro also submitted that the reason the appellant gave for wanting to dispose of the panga was flimsy. Lastly, on Ground 4 learned E State Attorney said it was only a matter of style: The truth is that the learned Trial Magistrate considered the evidence of both the Prosecution and the Defence before arriving at her decision. F
We are obliged to both Counsel for their help. We propose to deal with the second ground first. With respect, we are not at all impressed by the appellant's advocate's submission that the disparity in the three reproductions of the reported G threats by the appellant to the deceased are such that the trial court ought reasonably to have doubted the veracity of PW2, PW3 and PW4. All the three versions yield the same basic message: That the deceased had done something bad to the appellant for which the deceased would have to pay that day. The three witnesses should not have been expected to quote the appellant verbatim necessarily. In fact, in the circumstances, if such witness had used the same H precise identical words one might start wondering. Like the trial court, we are satisfied that the appellant did utter the threats to the deceased. We might jump in here and add that this was I
1994 TLR p142
MAKAME JA
A indeed a circumstance to be taken into account in considering the guilt or otherwise of the appellant.
Regarding the bush-knife which was Ground 3, we wish to say that one did not have to rely on the evidence of the girl PW5 to find that it featured in the case. Further, it is true that it would

indeed have been improper to make use of it B because the evidence of a hostile witness has to be thrown out in toto. In the instant case, however, there was the evidence of the appellant himself that he did instruct PW5 to throw away the weapon, into a latrine or into a river. People do not C usually throw away weapons which happen to hurt them, as that would be quite unnatural. If you fear that a weapon would hurt you again why not fear for your daughter also, and why not think of members of the public who may have D occasion to be in the river? We are satisfied that the appellant had something to fear about the panga and that was why he gave instructions for its disposal. We too think it would have been better workmanship to send the weapon to the government chemist, but in the particular circumstances of this case we do not think the unhappy omission was fatal.

E Regarding Ground 4 we agree with what Mr Bilaro said. Every magistrate or judge has got his or her own style of composing a judgment. Some judgments are more logically written, some are more neatly thoughtful, some are more compondious, and so on. What vitally matters is that the essences should be there, and these include critical analysis of both the prosecution and the defence. We are unable to say that the essential ingredients are lacking in the judgment we are considering. F

We now wish to turn back to the issue of the reliability or otherwise of the witness Daniel Komba. One needs to be realistic. We cannot fail to agree with Mr Bilaro that what we are satisfied did happen at the house of PW2 and PW4 is a G circumstance legitimately to be taken into account. We are of course referring to the threats which, as we have indicated, we are satisfied the appellant did utter. Within minutes thereafter the deceased lies stabbed and dead. The Trial Magistrate and both her assessors specifically said they believed PW3. We are H respectfully of the view that what she said was true and we accept her explanation that she held back some information at the police station because she was scared and had been roughed up. That in our view explains the disparity pointed out.

There was also the behaviour of the appellant soon after the event. He disappeared from his abode and his story that he went I

off to look for a job, while he had another job uncompleted and without saying A goodbye to his family, convinces us that he went into hiding because he was responsible for the dastardly deed. If he innocently spent the night at the house of his uncle and innocently again travelled with him one would have expected him to call that uncle or at least explain why he did not do so. B

The totality of the evidence satisfied us, beyond reasonable doubt, as it did the learned Trial Magistrate, that it was the appellant that murdered the deceased. The appellant knows why he did so. The motive is not discernible on the record but then, of course, motive does not have to be established to bring the charge home. C

We dismiss the appeal as we are satisfied that the Trial Court decision cannot justly be assailed.

We wish to associate ourselves with what Mrs Kiloo said about the police habit of confining a suspect's dear ones so as to lure the suspect from hiding. The practice may produce the desired

results but is is certainly crude, mean, unjust, callous, and deplorable. It is hardly calculated to endear the police force to the public. D
1994 TLR p143

[zRPz]MAULID HASSAN KONDO v REPUBLIC 1994 TLR 143 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam F
Judge Nyalali JJA, Mnzavas JJA and Lubuva JJA

CRIMINAL APPEAL NO. 164 OF 1993 G
30 May, 1994
(From the decision of the High Court of Tanzania at Dar es Salaam, Mapigano, J)
Flynote
Criminal Law - Murder contrary to s 196 of the Penal Code Cap 16 H
Criminal Practice and Procedure - Appeal - Memorandum of Appeal filed out of time - Consequences thereof - Rule 65(1) of the Court of Appeal Rules 1979.
-Headnote
The appellant was convicted of murder contrary to s 196 of the Penal Code, and sentenced to death. He appealed to the Court of Appeal. When the I
1994 TLR p144
A appeal came up for hearing it was discovered that the memorandum of appeal had been filed out of time.
Held:
(i) The appeal was not properly before the Court as the mandatory provisions of Rule 65(1) of the Court of Appeal Rules 1979 were not complied with;
B (ii) Malice aforethought was clearly established by the evidence that the applicant used a pestle in attacking the deceased, and there were no reasons to interfere with the finding of the High Court which was based on clear and loud evidence.
Case Information
Appeal dismissed.
C No case referred to.
Lamwai, for the appellant.
Miss Kiwanga, for the respondent.
[zJDz]Judgment
D Mnzavas, JA, delivered the following considered judgment of the Courts:
Maulidi Hassani Kondo was charged with and convicted of murder contrary to s 196 of the Penal Code and sentenced to death. Dissatisfied with the decision of the High Court, (Mapigano, J) he has appealed to this Court. E
When the appeal came up for hearing on 17 February 1994 we discovered that it was not properly before us as the memorandum of appeal was filed out of time contrary to the provisions

of Rule 65(1) of the Court of Appeal Rules. Dr Lamwai, F learned defence counsel applied for an adjournment to enable him to file an application for leave by this Court for enlargement of time to file memorandum of appeal. The application was granted but when the matter came up again for hearing this morning - 26 May 1994, Dr Lamwai informed the Court that after he G had scrutinised the evidence tendered in the High Court he was of the view that the conviction was based on the evidence of identification of the appellant by PW1, Fatuma Thabiti, who told the trial court that she saw and identified the appellant as he was attacking the deceased Thabiti Ali on 18 November 1990.

H The learned defence counsel finally told the Court that he had nothing to say about the conviction and left the matter to the Court to decide. In her short submission to the Court Miss Kiwanga, learned State Attorney, said that in view of what the learned defence counsel had stated she also left it to the court to decide.

First we would like to point out that the appeal was not properly before us as the mandatory provisions of Rule 65(1) were not com- I

1994 TLR p145

MNZAVAS JA

plied with. That being the position the Court would be entitled to strike it out as A incompetent.

Even if for the sake of argument the appeal had been properly before us we would have no reason to interfere with the finding of the High Court taking into account that the conviction was based on the clear and loud evidence of Fatuma, PW1. B

The witness, (PW1), testified that she knew the appellant before the incident and that she clearly saw him attacking the deceased on the head with a pestle. According to her testimony the attack took place in the morning at a `ngoma' party to celebrate the initiation of three girls and that it was in the morning at 6 am. That PW1 could not have mistakenly identified the appellant is evident from her C husband's testimony. Her husband, (PW2), told the court that he saw the appellant holding a pestle and attacking his wife (PW1) in the flank. Apparently the appellant is uncle of PW2. There was no suggestion, leave alone evidence, that PW1 and PW2 had reason to tell lies against the appellant. D

We see no reason to differ with the learned judge's finding of fact that it was the appellant who fatally attacked the deceased on the material day. Malice aforethought was clearly established taking into account the evidence that the appellant used a pestle in attacking the deceased; he held the pestle with both E hands when inflicting the blow and directed the blow to such vulnerable part of the body, the head.

We are satisfied in our own minds that there was ample evidence in support of the learned judge's finding that the appellant was guilty of the offence of murder as charged. In the event we dismiss the appeal in its entirety. F

1994 TLR p146

A

[zRPz]REPUBLIC v MBUSHUU alias DOMINIC MNYAROJE AND KALAI SANGULA 1994 TLR 146 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J

B CRIMINAL SESSIONS CASE NO. 44 OF 1991
22 June, 1994
Flynote
C Constitutional Law - Death penalty - Whether or not offends the right to dignity - Article 13(6)(d) of the Constitution of the United Republic of Tanzania, 1977.
Constitutional Law - Death penalty - Whether it is a cruel, inhuman and degrading punishment and treatment - Article 13(6)(e) of the Constitution of the United Republic of Tanzania.
D Constitutional Law - Penal Code - Whether the provision prescribing death penalty is lawful law or necessary in the public interest - Article 30(2) of the Constitution of the United Republic of Tanzania.
Constitutional Law - Death penalty - Whether death penalty violates article 14 of the Constitution of the United Republic of Tanzania which guarantees the right to life.
E Constitutional Law - Violation of basic rights - Burden of proof - Proof on balance of probabilities.
F Statutory interpretation - Constitutional provisions guaranteeing basic rights - Whether generous and purposive construction should be applied.
-Headnote
The two accused were convicted of murder contrary to s 196 of the Penal Code, by the High Court and they were to be sentenced to death. However before the G sentence was pronounced a point was raised that the death penalty was unconstitutional and therefore it should not be imposed on the accused.
Held:
H (i) Death penalty offends the right to the dignity of a person in the way the sentence is executed and therefore it offends article 13(6)(d) of the Constitution of the United Republic of Tanzania;

(ii) Death penalty is inherently cruel, inhuman and a degrading punishment and the process of execution by hanging is particularly gruesome, generally sordid, debasing and generally brutalising, and it offends article 13(6)(e) of the Constitution of the United Republic of Tanzania; I
1994 TLR p147

(iii) From the wording of article 14 on the right to life in the Swahili version of A the Constitution of the United Republic of Tanzania, which is the controlling version, both the right to life and the right to protection of one's life by society is subject to the claw-back clause and is therefore not absolute;

(iv) The petitioners have managed to prove on a balance of probabilities that hanging, as the way of carrying out the death penalty, is a cruel, inhuman and degrading punishment; B

(v) The petitioners have only evidential burden to show that a right has been infringed and once they have succeeded to show that then it is for the state to prove on a balance of probabilities that the law being attacked as unconstitutional is lawful law and that it is saved by article 30(2) of the Constitution of the United Republic of Tanzania and therefore it is in the public interest; C

(vi) The Republic has failed to prove on a balance of probabilities that the death penalty is in the public interest;

(vii) For a law to be lawful it should meet the proportionality test and it should D not be arbitrary; the Government in this case has failed to prove on balance of probabilities that the present law restricting the right to life is proportionate and the carrying out of the sentence is not arbitrary;

(viii) The provisions of the Penal Code on the death penalty do not have E adequate safeguards against arbitrary decisions and do not provide effective control against abuse of power by those in authority when using the law;

(ix) Death penalty is contrary to article 13(6)(a) of the Constitution of the United Republic of Tanzania because there is no appeal against the decision of the President not to commute the sentence even if it is unreasonable or discriminatory; F

(x) In construction of provisions of the Constitution and in particular that part of it which protects and entrenches fundamental rights and freedoms, a generous and purposive method should be applied.

Case Information

Death penalty in its present form is unconstitutional. G

Cases referred to:

(1) AG of the Gambia v Momodue Jobe [1984] PC 689.
(2) Minister of Home Affairs v Fisher [1980] AC 319.
(3) Kukutia Ole Pumbun and Another v AG [1993] TLR.
(4) AG v Lesinoi s/o Ndeinai [1980] TLR 214. H
(5) Riley and Others v AG of Jamaica [1982] 3 All ER 469.
(6) Catholic Commission for Justice and Peace v AG and Others [1993] (1) ZLR 242.
(7) AG v Morgan [1985] LRC (Const) 770.
(8) The State v Petrus [1985] LRC (Const) 699.
(9) AG v Edmund s/o Lawrence [1985] LRC (Const) 921.
(10) Kahekeya Buzoya v R (1976) LRT n 16. I

A (11) Ndlovu v The State [1988] LRC (Const) 442.
(12) Trop v Dulles, 356 US 86.
(13) Estelle v Gamble 429 US 97.
(14) Chileya v State, Criminal Appeal No 64/1990.
(15) Soering Case [1989] 11 EHRR 439.
B (16) Furman v Georgia, 408 US 238.
(17) Javed Ahmed v The State of Maharashtra, AIR 1985 SC 251.

(18) Madhu Mehta v Union of India [1989] 3 SCR 775.

(19) De Freitas v, Benny [1976] AC 239 (PC).

(20) Bello v AG of Oyo State [1986] 5 NWLR 88828.

(21) Omwuka v The state [1988] 1 NWLR 529.

C (22) Dhlamini and Others v Carter [1968] 1 RLR 136.

(23) AG v Lachma Devi [1986] LRC (Const) 1.

(24) Bachan Singh v State of Punjab [1983] 1 SCR 154.

(25) Director of Public Prosecution v Daudi Pete, [1993] TLR 22.

(26) Said s/o Mwamwindi v R [1972] HCD 212.

D (27) R v Asha Mkwizu Hauli, Dar es Salaam, High Court Criminal Sessions Case No 3 of 1984 (unreported).

(28) Director of Public Prosecutions v Leganzo Nyanje, Criminal appeal No 68 of 1980 (unreported).

(29) R v Agnes Doris Liundi [1980] TLR 46.

(30) Conjwayo v Minister of Justice and Director of Prisons [1991] 1 ZLR 105 (SC). E Mwambe and Kifunda, for the Republic.

Rweyongeza and Mpoki, for the Accused.

[zJDz]Judgment

F Mwalusanya J:

I INTRODUCTION

The two accused Mbushuu alias Dominic Mnyaroje (first accused) and Kalai s/o Sangula (second accused) were on 13 May 1994 convicted of murder contrary to s 196 of the Penal Code cap 16 by this Court. They were supposed to get a death G penalty by virtue of s 197 of the Penal Code, and the death penalty is to be by hanging as per s 26 of the Penal Code. Before the death penalty was imposed, counsel for the accused (on dock brief) Mr Rweyongeza raised a point to the effect that the death penalty is unconstitutional and so it should not be imposed. Three points were raised concerning the unconstitutionality of the death penalty - first H that it offends the right to dignity in the execution of a sentence provided for in article 13(6)(d) of the Constitution; secondly that the death penalty is a cruel, inhuman and degrading punishment and treatment prohibited by article 13(6)(e) of our Constitution; and thirdly that the death I

penalty offends the right to life as provided in article 14 of our Constitution. The A Attorney-General was duly served with summons to appear as required by s 17A(2) of the Law Reform (Fatal Accidents & Misc Provisions) Ordinance cap 360 as amended by Act 27 of 1991. And Mr Mwambe learned State Attorney duly appeared on behalf of the Attorney-General. B

At the outset I wish to point out some of the general principles that will guide me in arriving at my conclusion at the end of the day. First I take it that a constitution and in particular that part of it which protects and entrenches fundamental rights and freedoms to which all persons in the state are to be entitled, is to be given a C generous and purposive construction - see the decision of the Privy Council in AG of The Gambia v Momodue Jobe (1) at 700 as per Lord Diplock. The

Privy Council repeated that doctrine in Minister of Home Affairs v Fisher (2) where Lord Wilberforce at 329 stated: D

`The way to construe a constitution on the Westminster model is to treat it not as if it were an Act of Parliament but as sui generis, calling for principles of interpretation of its own, suitable to its character, without necessary acceptance of all the presumptions that are relevant to legislation of private law. The Constitution calls for a generous interpretation avoiding what has been called the "austerity of tabulated legalism", suitable to give to individuals the full measure of the fundamental rights and freedoms referred to.' E

And in the same vein, as counsel for the petitioners Mr Rweyongeza has pointed out, the Court of Appeal of Tanzania in the case of Kututia Ole Pumbun & anor v F AG (3) stated at page 11 of the typed judgment (as per Kisanga JA) that; `Any law that seeks to limit fundamental rights of the individual must be construed strictly to make sure that it conforms with these requirements, otherwise the guaranteed rights under the Constitution may easily be rendered meaningless by the use of G the derogative or claw-back clauses of that very same Constitution.' And also relevant is the decision of the Tanzania Court of Appeal in AG v Lesinoi s/o Ndeinai (4) which it held that a constitutional provision should not be construed so as to defeat its evident purpose, but rather so as to give it effective operation. H

Connected to the above principles is the question of burden of proof. I think there are two situations. First on whom does the burden of proof lie to establish that there has been a violation of a basic human right? Secondly, once it has been established that there has been a violation of a basic human right, on whom does I

A the burden of proof lie to show that the violation has been saved by the Constitution? In the first situation the matter was put clearly by the Privy Council in the case of Riley & others v AG of Jamaica (5) at 480 that it was on the person attacking the death penalty to be unconstitutional to prove on a balance of B probabilities that it is a cruel, inhuman and degrading punishment. The Supreme Court of Zimbabwe in the case of Catholic Commission for Justice and Peace v AG & others (6), as per Gubbay CJ stated that: `I consider that the burden of proof that a fundamental right, of whatever nature, has been breached is on him who asserts it. In relation to article 15(1) of the Constitution the issue of whether an C individual has been subjected to torture or to inhuman or degrading punishment is essentially a matter of fact and ordinarily some evidence would have to be adduced to support the contention. The respondent is not obliged to do anything until a case is made out which requires to be met.' I accept that to be the correct D position even here in Tanzania. As regards the second situation the case decided by the Court of Appeal of Trinidad and Tobago of AG v Morgan (7) correctly stated on whom the burden lies where it stated; `Where an Act is passed into law and E that Act is one that restricts the rights and freedoms of an individual, in order to impugn such an Act, all that the individual is required to do is to show that one or more of his rights has been restricted. Having done so, because of the expressed constitutional policy, the burden is then shifted to the proponents of the Act to F show that the provisions of the Act restricting such rights and freedoms are

reasonable restrictions. If the proponents of the Act fail to discharge this burden, then a Court of competent jurisdiction may pronounce against the validity of the impugned Act.'

I agree with that proposition of law. That means the petitioner has only an evidential burden of proof and the State has to prove on a balance of probabilities G that the violation of the basic human rights has been saved by the Constitution. That is exactly what was decided also by the Court of Appeal of Botswana in the case of The State v Petrus (8) at 722 as per Aguda JA. The decision of the Court of Appeal of St Christopher and Nevis in the case of AG v Edmund s/o Lawrence H (9) which suggests that the petitioner has to establish a prima facie case that the law impugned is unconstitutional before the onus shifts to the Republic, was in my view wrongly decided. The petitioner does not have to establish a prima facie case but just raise the matter (evidential burden) that a particular piece of legislation is ex-facie ultra vires the Constitution then the onus shifts to the Republic. It is just similar to the defence of I

intoxication in the case of murder, where the burden of proving that the accused A was capable of forming the intent necessary to constitute the offence of murder always remains on the prosecution, and such a burden is not discharged if the probability emerges from the evidence (either from the evidence of the prosecution or the accused) that the accused was incapable of forming the intent - see the B decision of the East African Court of Appeal in Kahekeya Buzoya v R (10). So similarly the petitioner has just to raise the fact that a particular piece of legislation violates a basic human right, and he does not have to establish a prima facie case before the burden of proof shifts to the Republic.

Finally I am of the considered view that international human rights instruments and C court decisions of other countries provide valuable information and guidance in interpreting the basic human rights in our Constitution and so a judge in my present situation should look to them and draw upon them in seeking a solution. As the Chief Justice of Zimbabwe Gubbay CJ has pointed out in (1990) D Commonwealth Law Bulletin vol 16 No 3 at 999: `A judicial decision has greater legitimacy and will command more respect if it accords with international norms that have been accepted by many countries, than if it is based upon the parochial experience or foibles of a particular judge or court.' E

And the Chief Justice of Tanzania Mr Justice Nyalali in the case of AG v Lesinoi s/o Ndeinai (4) at 222 states that when basic human rights are at stake or the question of interpretation of a constitutional provisions arises then: `On a matter of this nature it is always very helpful to consider what solutions to the problems F other courts in other countries have found, since basically human beings are the same though they may live under different conditions.' Suffice to state here that the Bangalore Principles (1988) pronounced by a distinguish Judicial Colloquim and later adopted at Harare (1989), Banjul (1990), Abuja (1991) and Balliol (1992) speak the same message above expounded. Let it be noted that Nyalali CJ G attended the Harare Judicial Colloquim, while Ramadhani JA attended the Balliol (Oxford, England) Judicial Colloquim.

II THE RIGHT TO DIGNITY AND THE RIGHT AGAINST CRUEL, INHUMAN AND DEGRADING PUNISHMENT AND TREATMENT H

The right to dignity under article 13(6)(d) and the right against cruel, inhuman and degrading punishment and or treatment under article 13(6)(e) will be discussed under one rubric. This is because the right to dignity referred to in that provision is concerned with the pre- I
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A servation of dignity in the execution of a sentence. And it is my view that a person who has been subjected to a degrading treatment has also been deprived of his right to dignity.
I also wish to point out at the outset that a punishment is either inherently cruel, inhuman and degrading or the mode or manner of execution of the punishment is B cruel, inhuman and degrading. That much was pointed out by the Court of Appeal of Botswana in the case of The State v Petrus (8) and by the Supreme Court of Zimbabwe in the case of Ndlovu v The State (11). It is the case for the petitioners that the death penalty is both inherently a cruel, inhuman and degrading C punishment and that its mode or manner of execution is also cruel, inhuman and degrading. And it is my finding that the term `torture' used in our Constitution is the equivalent of the term `cruel' that I will hereinafter use.
D And it will be important to remember that concepts such as `cruel, inhuman, and degrading' are subject to evolving standards of decency. They are not immutable. And that is what we learn from the US Supreme Court in the cases of Trop v Dulles (12) at 101; and Estelle v Gamble (13) at 102. Thus punishment or treatment incompatible with the evolving standards of decency that mark the E progress of a maturing society or which involve the infliction of unnecessary suffering is repulsive. What might not have been regarded as inhuman decades ago may be revolting to the new sensitivities which emerge as civilization advances.
F (a) The death penalty is inherently cruel it was submitted on behalf of the two petitioners. It is said the process of execution by hanging is particularly gruesome. One leading doctor described the process as `slow, dirty, horrible, brutal, uncivilized and unspeakably barbaric'. The prisoner is dropped through a trapdoor, to eight and a half feet with a rope around his neck. The intention is to G break his neck so that he dies quickly. The length of the drop is determined on the basic of such factors as body weight and muscularity or fatness of the prisoner's neck. If the hangman gets it wrong and the prisoner is dropped too far, the prisoner's head can be decapitated or his face can be torn away. If the drop is too short then the neck will not be broken but instead the prisoner will die of H strangulation. There are many documented cases of botched hangings in various countries including Tanzania. There are a few cases in which hangings have been messed up and the prison guards have had to pull on the prisoner's legs to speed up his death or use a hammer to hit his head. The shock to the system causes the prisoner to lose control over his bowels and he will soil himself. I
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In short the whole process is sordid and debasing. Not only is the process A generally sordid and debasing, but also it is generally brutalizing and thus defeats the very purpose it claims to be pursuing. The brutalizing effect of executions has been amply documented - see `Legal Homicide: Death as Punishment in America from 1864 to 1982' (1984) 2nd ed at 271-335 by

William J Bowers and G B R Pierce; and the book `The effect of Executions is Brutalization, not Deterrence' (1988) by William J Bowers, Kenneth A Haas and James A Inciardi (editors).
It was argued for the petitioners that the State continues to perpetuate such cruelty under the protection of the law. This may legitimize the act in its legal sense, but certainly it does nothing to mitigate its barbarity. The act of killing in itself is C offensive: that it is done by the State does nothing to lesson its offensiveness. It is furthermore done in cold blood with utter cruelty. Now there are circumstances which lead up to the killing which are said to provoke it. But this is not provocation in the innate moral sense. When a private individual kills after having been D provoked, this is regarded as mitigating because, at the time of the killing, the killer's blood is heated and human passions aroused. When the State kills, its blood is cold, its detachment inhuman. Legitimizing State killings by law thus takes killing out of the arena of perverse human behaviour and elevates it into a principle. E In other words rather than killing being deemed as heinous in itself - the result of perversity - it becomes something which is acceptable if done by the right people at the right time. The gates are then opened for people to determine F whether they are the right people and whether the time is right. The heinous nature of murder becomes diluted in the public eye, the public becomes accustomed to brutality, brutality enters the prevailing moral ethos, becomes acceptable and regarded as an inevitable part of human society. A prominent American lawyer, G Clarence Darrow, in his speeches `Attorney for the Damned' (1957) Simon & Schuster, New York at 92 states: `We teach people to kill and the State is the one that teaches them. If the State wishes that its citizens respect human life, then the State should stop killing. The greater the sanctity that the State pays to life, the greater the feeling of sanctity the individual has for life.' H
To dramatize it, consider its logical corollary. A woman is beaten and raped. The perpetrator is apprehended. A State rapist is then engaged to exact retribution on behalf of society. He first beats the rapist in an identical manner to that in which the woman was beaten and then proceeds to rape the rapist in as identical a fashion I

A as possible, once or however many counts are involved. The very analogy is distasteful. One may decide to create a raping machine operated by the State rapist to remove some of these distasteful aspects.
B It would nonetheless remain a punishment which should not be countenanced by society. The reason is clear. Rape in itself is brutal and abhorrent. It does not matter that it is done under the cloak of any law. To have an official State rapist is debasing and brutalizing to society. It gives an official stamp of approval to degradation. Yet somehow, murder, which is worse, is carried out under the cloak C of the law and is regarded as acceptable. Murder, like rape, is in itself brutal and must be condemned unequivocally for itself and not merely by reason of the fact that it was not done under the sanction of law. This is why state killing is debasing and brutalizing. It seeks to legitimize brutality; which can never be anything other than brutality. That was part of the argument on behalf of the two petitioners. D

Moreover it was argued on behalf of the petitioners that the State by conduct admits that the death penalty is sordid and debasing. In the past hangings were done publicly. When capital punishment was a public spectacle it became linked in E the minds of the public as part and parcel of the crime. It was as if the punishment was thought to equal, if not to exceed, in savagery, the crime itself, to accustom the spectators to a ferocity from which one wished to divert them. At the end of the day the tortured criminal became an object of pity or admiration if not a F hero by the spectators. The perception that the state was brutal had to be minimized. It was achieved by making the execution the most hidden part of the penal process. The actual execution is carried out under a seal of secrecy and executions are bureaucratically concealed. The concealment minimizes only and does not remove the debasement and brutalization. The concealment, it was G submitted, manifests the State's guilty conscience.

It has also been argued that if death penalty is to stay, then other better methods of killing than hanging have to be invoked or devised. There has been suggested the use of the electric chair or a lethal injection or gas chamber as used in the USA H . These methods are less cruel than hanging. The Supreme Court of Zimbabwe in the case of Chileya v State (14) was about to deliver a judgment to the effect that death penalty by hanging was cruel and debasing punishment, and so the State should devise a better method of killing.

However the Court was pre-empted by the government which I

passed an amendment to the Constitution to the effect that `hanging' was A constitutional. But why use `hanging' when there are other less cruel methods of killing?

(b) Then it is argued that the mode or manner of execution of the death penalty is objectionable on two grounds - the long delay in carrying out the execution and secondly, the horrible conditions under which the people on death row are kept. B

The first point about the long delay in carrying out the execution, it is argued causes untold mental anguish to the prisoners on death row. Capital punishment, it should be pointed out, is a euphemism for official killing by the State. However, C unlike most murders, the process leading up to the killing is a long drawn out one. From the time the person is sentenced to death he is immediately installed on death row in a blue uniform. He is kept in virtual solitary confinement in an individual cell which is so small that he can touch both walls with his arms outstretched - see s 71 of the Prisons Act 34 of 1967 and also regulation 21(2) D and regulation 33 of the Prisons (Prison Management) Regulations GN No 19 of 1968. The only reading material, if any, is the bible or other religious tracts. Every night all his clothes are taken away and he is kept naked in his cell until the next morning. The light in his cell is never turned off and he is kept under surveillance E by the guards. Some guards take delight in taunting the prisoners, constantly reminding them of their impending fate and telling them gruesome stories of executions which have gone wrong. From the time the High Court tells a murderer that he is to hang, in the Tanzanian context he will often wait in suspense for more F than four years before he is finally taken to the gallows. I was referred to an article in the Business Times newspaper by Mr Robert Rweyemamu (with a legal touch column) of 2 April 1993, and counsel

for the petitioners Mr Rweyongeza said that it reveals aptly the long delays of carrying out executions in Tanzania. The G long agonizing wait before the final decision is taken and the shorter wait for the sentence to be carried out inevitably causes appreciable mental suffering. This pre-execution period has been referred to as a period in which the prisoner suffers a living death or hell on earth. He fearfully broods on his fate and suffers great anguish and uncertainty. H

This often leads to pronounced mental deterioration. Inordinate delay before execution thus constitutes a form of prolonged mental torture. For a detailed discussion of and reference to the literature on the mental effects upon prisoners on death row - see pp 12-15 of the cyclostyled copy of the judgment of the Supreme Court of I

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A Zimbabwe in the case of Catholic Commission for Justice and Peace v AG and others (6). Then there was the argument presented about the horrible condition in the condemned sections of all prisons in Tanzania. I was invited under s 59 and s 122 of the Evidence Act 6 of 1967 to take judicial notice of all the Prison Regulations B GN No 13 of 1968, GN No 18 of 1968 and GN No 19 of 1968 and the reports of the Visiting Justices to prison. For example the amount of diet and the amount of exercise allotted to the prisoner on a death row is at the discretion of the Principal Commissioner of Prisons and is generally minimal see regulation 33 of the GN No 19 of 1968. It is common knowledge that the prisoners are kept in tiny cells without C access to washing, and open air and they cannot exercise effectively. Because of poor preparation conditions the diet provided is extremely poor and the quantity small. In short the prisoners on death row are treated as non-persons whose rights are subject to the whim of the supervising administration at the prison concerned. For similar conditions of prison in Zimbabwe, the Supreme Court there D in the case of Conjwayo v Minister of Justice and Director of Prisons (30) held that these horrible conditions constituted a cruel, inhuman and degrading punishment.

E On concluding this part, it has been contended on behalf of the petitioners, that the emerging consensus of values in the civilized international community as evidenced by the UN human rights instruments, the decision of other courts and the writings of leading academics is that the death penalty is a cruel, inhuman and F degrading punishment. It was pointed out that article 6(6) of the International Covenant on Civil and Political Rights (1966) (which Tanzania has ratified) states: `Nothing in this article shall be invoked to delay or to prevent the abolition of capital punishment by any State Party to the present Covenant' which indicates that the G parties to the Covenant have agreed to eventually abolish the death penalty. And the UN Commission on Human Rights at its 1989 session in Genera agreed by consensus that the death penalty was a cruel, inhuman and degrading punishment, and agreed to forward to the UN General Assembly a draft Second H Optional Protocol to the International Covenant on Civil and Political Rights aimed at abolishing the death penalty. Indeed the Second Optional Protocol to the International Covenant on Civil and Political Rights was passed by the UN General Assembly in 1989 and many member states have started ratifying it, and no doubt Tanzania which has a great reputation of respecting human rights will I

soon ratify it. Amnesty International, vide its Declaration of Stockholm of 1977, with A delegates of about 200 from Africa, Asia, Europe, Middle East, North and South America and the Carribean Region, declared that the death penalty was an inhuman, degrading and cruel punishment. The Nyalali Commission in its authoritative Report Book III at 25 held that the death penalty was an inhuman and B cruel punishment and so should be abolished. Then we have the Council of Europe which in its Protocol 6 to the Convention for the Protection of Human Rights and Freedoms (1950) abolished the death penalty in 1983 for all member countries of the Council of Europe because they had found it to be a cruel and inhuman punishment. And the European Court of Human Rights in the Soering C case (15) held that the death penalty according to the evolving standards of Western Europe was a cruel and inhuman punishment. The following countries of the Commonwealth have abolished the death penalty: Namibia, The Gambia, D Kiribati, New Zealand, Solomon Islands, Tuvalu and Vanuatu, Australia and South Africa (soon to become a Commonwealth member). Some of the decisions of other countries which have declared the death penalty to be a cruel punishment are: USA in Furman v Georgia (16); India we have Javed Ahmed v The State of Maharashtra (17) and Madhu Mehta v Union of India (18); in West Indies we have De Freitas v Benny (19) and Riley v AG of Jamaica (5); and two cases from E Nigeria - Bello v AG of Oyo State (20) and Omwuka v The State (21) and from Zimbabwe the famous case cited above of The Catholic Commission for Justice and Peace v AG (6). F

The arguments for the Republic in reply were made by the State Attorney Mr Mwambe. Mr Mwambe conceded that the prisoners do suffer some torture in the process of hanging, but countered by stating that the torture the victims of murderers encounter is much more. And since the murderers are getting a just desert and what they deserve, then they cannot complain about the torture or loss of dignity, he submitted. G

Concerning the delay in carrying out the execution for years on end, Mr Mwambe submitted that it is not a torture but a blessing in disguise to the said prisoners. He said that in fact the prisoners are quite happy for the delay, as they are given many more years to live which they don't deserve. H

Concerning the horrible conditions in the death cells, all Mr Mwambe could say was that the prisoners are treated in accordance with what the Tanzanian's state of economy can afford. He could not tell if the conditions in prison are horrible or not. I

A And for the Republic it can be argued that the remedy to the above named complaints about torture in hanging, delay in execution and horrible conditions in the death cells, has been given in other countries, although Mr Mwambe was not aware of this. It could be contended that the solution to the complaints raised by B the prisoners is not the abolition of the death penalty, but to apply to court to give an order to the Government to rectify those matters. The Chief

Justice of the then Southern Rhodesia Beadle CJ in the case of Dhlamini and others v Carter (22) said:

C `If during the course of time of serving a sentence of imprisonment a prisoner is subjected to inhuman or degrading treatment, the court, in the exercise of its powers given to it by the Constitution, would see that the treatment was stopped but that would not entitle this court to sit as a Court of Appeal, as it were, on the original sentence. The inhuman treatment complained of in the instant case is the delay in carrying out the sentence. If, as I have already D found, `treatment' is distinct from punishment and if the inhumanity of the treatment cannot taint the lawfulness of an otherwise lawful punishment, then the only remedy an accused who had been sentenced to death has, is to ask for an order that the delay should stop, something which no person sentenced to death is ever likely to do.' E

There is also another point in favour of the Republic to the effect there is no consensus of values in the so-called civilized society that the death penalty is a cruel, inhuman and degrading punishment. It has been pointed out that the F decisions of other courts in different countries are not uniform. For example in the USA many States retain the death penalty. In India in such cases as AG v Lachma Devi (23) and Bachan Singh v State of Punjab (24) the Supreme Court there held that the death penalty by hanging was not a cruel, inhuman and degrading punishment. And as long ago as 1961 the UN General Assembly in its Resolution G No 32 of 1961 declared that the death penalty was not unlawful but that it should be reserved for only very serious crimes like murder. Even article 6(2) of the International Covenant and Civil and Political Rights (1966) does not prohibit member countries imposing the death penalty for serious crimes like murder. What is more is that the UN Convention against Torture and other Cruel, Inhuman H or Degrading Treatment and or Punishment of 1987 did not prohibit the imposition of the death penalty if it is prescribed by law. That is why the majority of the 161 members of the UNO retain the death penalty - 100 countries retain it and only 35 countries have abolished it - see Amnesty Interna- I

tional Newsletter May 1989 at 3. And in the Commonwealth 46 countries out of 53 A retain the death penalty and only 7 have abolished it - see the Commonwealth Lawyer Journal of March 1993 at 71-76.

It has been submitted elsewhere that the argument that capital punishment has no place in a civilized society, presupposes that only one set of values (liberal B Western values) is `civilized'. They exclude the values of the Third World including countries of the East. In any case even in the West there is no unanimity about the desirability of abolishing capital punishment. In China and other countries of the East where Confucian values prevail (eg Singapore, Taiwan) capital punishment is C accepted without hesitation. The Western liberal values do not represent what is truly a `civilized society' but its admirers merely confuse it with technological advancement. It may be true to say that technology has advanced considerably in the last few decades, but it is highly debatable whether civilization has advanced much, if at all. Civilization in fact is going down particularly in the decadent West. D We see in the West a

decline in values to the point where one wonders if most people have any beliefs or morals at all: an all-absorbing selfishness and lack of concern for others, crass materialism, an increasing disregard for the law, the E commission of crimes of a most revolting nature such as were unimaginable a few years ago, the apparent acceptance of sexual immorality and promiscuity as alternative lifestyles, proliferation of drugs, easy divorce and abortion, and devaluation of the family unit etc, the list is depressingly endless. Alongside these F signs of moral degeneration are the continuing tragedies of wars, refugees and increasing poverty. These are just the tip of an iceberg of the flaws in a modern society, and so the talk of the values of a `civilized society' is mere trash and ironical at best.

It was argued for the Republic that what should therefore be considered in G determining whether the death penalty is a cruel, inhuman and degrading punishment is not the values of a nebulous `civilized society' but the contemporary norms operative in Tanzania and the sensitivities of its people. The question should be whether capital punishment, with what it entails, is acceptable in a H Tanzanian society. The decisions of other courts in other countries and the writings of leading academics are questionable because they do not take into account the sensitivities of the people of Tanzania. Therefore the views of other courts and leading academics are very much out of touch with what an ordinary Tanzanian feels on the matter. If newspaper reports are anything to go by, it would be seen I

A that the majority of Tanzanians do not regard the death penalty as a cruel and degrading punishment. Although there has been no public opinion survey, it can be asserted with some confidence that the majority of the people of Tanzania are not against capital punishment and that the abolitionists are a minority group. In a democratic state like Tanzania, the views of the majority should be respected. B This is because for any system of justice to work, it must be credible in the eyes of the people of the country concerned. For this reason the court's and Parliament's attitudes should not be radically different from those of society as a whole. It is C very dangerous in fact to allow penal policy to jump too far ahead of the population, since it will result in the loss of public confidence in the criminal justice system and concomitantly to the alienation of the public from it. There is abundant evidence that members of the Tanzanian public often resort to mob justice in a situation in D which they feel that the criminal justice system and/or its agencies, lack the competence or the will to protect them against crimes. Therefore no civilized community should provoke such a situation in the name of a so-called `progressive' penal policy.

I will start my decision with the point raised that the remedy for the petitioner's EI complaints is for them to apply to court so that it may order the government to stop the ugly aspects of the death penalty like delay, horrible conditions of prison and hanging. The Republic's arguments rests on the decision of Beadle CJ in the case of South Rhodesia of Dhlamini & others v Carter (22). In my considered view the F views of Beadle CJ were aptly answered by Gubbay CJ in the later case of The Catholic Commission for Justice and Peace v AG of Zimbabwe (6). It was held in that latter case that when a prisoner who has been on death row for several years approaches

the courts for relief he is not seeking to be put to death expeditiously G but rather he is saying that the long period he has spent on death row, coupled with the agony and anguish of death row endured for several years, plus the horrible conditions under which he is kept, is such as to render his execution at that particular time so cruel and inhuman as to offend the constitutional prohibition against cruel and inhuman punishment. Contrary to Beadle CJ's reasoning, he H would not be challenging the legality or appropriateness of the original sentence of death. He would be accepting the validity of that original sentence but merely arguing that the juxtaposition of the intervening delay and the prolonged anguish of death row, which has been appropriately referred to as a `living hell' is such as to render it particularly inhuman to execute him at that stage. In I

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the case at hand there is no argument that the court is trying to act as an appellate A court in a case it had already passed a death sentence, as was the case in two cases cited from Zimbabwe, but those two cases emphasize one point relevant here, that the juxtaposition of the delay in carrying out the death penalty and horrible conditions under which the prisoners are kept are relevant matters in B determining whether a death penalty is a cruel, inhuman and degrading punishment. As Pannick in his book `Judicial Review of the Death Penalty' at 85 aptly puts it:

> `Whether or not the death penalty is Constitutional per se, the pain and suffering it causes may C exceed constitutional limits when the agony caused by delay is added to the balance.'

And according to our Constitution in article 30(3) an aggrieved person `may without prejudice to any other action or remedy lawfully available to him in respect D of the same matter, institute proceedings for relief in the High Court to vindicate his basic human rights. Therefore even if the prisoners could apply to the High Court to order the government to rectify the ugly matters inherent within the death penalty, still they are not precluded from making a petition to vindicate their basic human rights that the death penalty is unconstitutional. E

That hanging is a cruel affair has not been challenged by the counsel for the Republic. All what Mr Mwambe learned State Attorney stated was that the torture that the hanged man gets is not comparable to the torture the victim of murder gets at the hands of the murderer. Well that begs the question or rather it is a tacit F admission that there is torture indeed in the process of hanging. An as amply demonstrated above, the government impliedly concedes that hanging is ugly and cruel and that is why they do it in secret so that the people should not witness such a cruel spectacle. It is my finding that the petitioners have managed to prove G on a balance of probabilities that hanging in carrying out the death penalty is a cruel, inhuman and degrading punishment.

Concerning the delay in carrying out the death penalty, there can be no doubt that it causes a lot of protracted mental anguish. Also the horrible conditions in the H death cells are only fit for a non-person. Learned State Attorney Mr Mwambe conceded that there is invariably a great deal of delay, the average may be up to five years. But he said that the delay is to the advantage of the

prisoners as they are happy that they are not hanged sooner. I don't think the fact that the prisoners on death row do not wish I

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A to be hanged sooner takes away the fact that there is acute mental anguish in the period they are waiting for their execution. If the article by Mr Robert Rweyemamu in the Business Times of 2 April 1993 is anything to go by, the delays are indeed inordinate and many are over ten years. I am entitled to take B judicial notice of that fact and by virtue of s 122 of the Evidence Act 6 of 1967 I am entitled to infer the existence of the above stated practice, regard being had to the common cause of natural events. The same applies to the horrible conditions obtaining in the death cells of condemned prisoners. As regards the horrible C conditions in the death cells it is common knowledge that the cells are small, dirty, over-crowded, very poor diet, little ventilation, no time for exercises, under watch for 24 hours, and medical facilities will only be available to these prisoners if the Prison Department is allocated enough funds to pay for their treatment - see Mzalendo Newspaper of 19 June 1994.

D So if the Prison Department has run short of funds (as is very common these days for every government department) that means the prisoners will not be treated as government hospitals demand payment for treatment of prisoners as well. Learned State Attorney Mr Mwambe stated that the horrible conditions in the E death cells and in the prisons as a whole are inevitable because of the poor state of the economy of this country. He said that the government cannot afford more than what it is doing. That is an admission of the horrible conditions in prison and the government is putting up a defence of poverty or lack of funds. It is my view that the defence of poverty can be offered elsewhere, but not when the basic F human rights of an individual are at stake.

There is the argument that this court in determining as to whether the death penalty is a cruel, inhuman and degrading punishment should concentrate on the contemporary norms operative in Tanzania and the sensitivities of its people instead of concentrating on the values of a nebulous `civilised society'. I agree, but G it is my view that even if one takes into account the sensitivities of the people of Tanzania, one cannot escape the conclusion that the death penalty, taken as a whole, is a cruel, inhuman and degrading punishment. The various ugly aspects of the death penalty as amply demonstrated above, are apt to move the heart of even the stone-hearted. The composition of the members of the Nyalali Commission H was quite representative, with a broad spectrum of the enlightened members of Tanzanian society, and they unanimously reached the conclusion that the death penalty was a cruel, inhuman and degrading punishment. I concede that there may be a majority I

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of Tanzanians who support the death penalty blindly, and these are not enlightened A and are not initiated or aware of the ugly aspects of the death penalty. Apparently it is so because the death penalty is carried out in secrecy. The government must assume responsibility for ensuring that their citizens are placed in a position whereunder they are able to base their views about the

death penalty on a rational B and properly informed assessment. It is clear that many people base their support for the penalty on an erroneous belief that capital punishment is the most effective deterrent punishment, and so the government has a duty to put the true facts before them instead of holding out to the public that the death penalty is an instant solution to violent crime. If many people, like members of the Nyalali C Commission see the death penalty as being morally insupportable and as having many negative effects, they would be expected to inform the public about their views and seek to influence public opinion in a more enlightened direction. The government should do the same. D

In fine I find that the petitioners have managed to prove on a balance of probabilities that the death penalty is a cruel, inhuman and degrading punishment and also that it offends the right to dignity in the course of executing the sentence. It is not just the final act of stringing up the prisoner which is an ugly matter; but the E protracted torment to which we subject the prisoner before finally dispatching him, makes the whole process even nastier.

III RIGHT TO LIFE F

The version in English of this basic human right reads: `Every person has a right to live and subject to law, to protection of his life by the society.' Counsel for the petitioners Mr Rweyongeza submitted that according to that wording the right to life is absolute and not governed by the claw-back clause of `subject to law'. He said G that what is subject to law is the right of an individual to the protection of his life by society. He invited me to accept his interpretation contending that it should be so because the right to life is the most fundamental right on which all other rights depend, and if life is extinguished then all other rights become meaningless. H

However, on my part I agree with Mr Mwambe learned State Attorney that the Swahili version of our Bill of Rights is the controlling version and not the English version, as amply pointed out by the Tanzania Court of Appeal in the case of Director of Public Prosecutions v Daudi Pete (25). The Swahili version reads: `Kila mtu I

A anayo haki ya kuishi na kupata kutoka kwa jamii hifadhi ya maisha yake, kwa mujibu wa sheria.' It is crystal clear from that wording in the Swahili version that both the right to life and the right to the protection of one's life by society, is subject to the claw-back clause `subject to law'. So it is my finding that the right to life is not absolute but subject to law. B

As amply indicated in Part I of this judgment, the petitioners have only an evidential burden to show that the right to life has been infringed. And that much they have succeeded to show. What remains then is for the Republic to prove on a balance of probabilities that the law prescribing the death penalty (the Penal Code cap 16) is a lawful law and that it is saved under article 30(2) of our Constitution. I reserve C for discussion that matter under Part IV of this judgment.

IV WHETHER THE LAW PRESCRIBING THE DEATH PENALTY IS LAWFUL LAW AND IS IN PUBLIC INTEREST UNDER ARTICLE 30(2) OF THE CONSTITUTION D

A. Whether the Death Penalty is in public interest under article 30(2) of the Constitution E

First we have the argument for the Republic that the death penalty has some deterrence effect. It is argued that the death penalty is necessary to protect society and that by executing some of the murderers we deter at least some potential F killers from committing murders. It cannot be disputed that the death penalty may have some deterrent effect. The vital question, however, is whether the death penalty has a deterrent effect significantly greater than the alternative sentence of life imprisonment or in other words, whether the death penalty protects society G more than life imprisonment. If the death sentence is not a superior deterrent then the same social purpose could be achieved by the use of life imprisonment. Over the years a large number of studies have been carried out. Some have compared the position before and after abolition of the death penalty in particular countries H and between different countries with and without the death penalty. Other methods have also been used to study the effects of capital punishment upon the incidence of murders. Mr Roger Hood, who is the Director of the Centre for Criminological Research at the University of Oxford, has examined carefully all these various studies and reaches the categorical conclusion that the research so far carried out has failed to provide I

scientific proof that executions have a greater deterrent effect than life A imprisonment - see R Hood The Question of the Death Penalty and the New Contributions of the Criminal Sciences to the Matter, a Report to the United Nations Committee on Crime Prevention and Control of 1988. Although some people intuitively believe that capital punishment must have a powerful deterrent effect, the following matters need to be borne in mind: B

(i) Most murders are committed on the spur of the moment in emotional circumstances. Clearly the death penalty has no effect on crimes of passion which are committed impulsively and without any thought being given to the penal consequences. C

(ii) Many murderers are mentally disturbed persons who will not have the mental capacity to be influenced in their conduct by the death penalty.

(iii) The relatively few planned and pre-meditated murders tend to be D perpetrated by criminals who are often supremely confident that they will escape detection and arrest.

Moreover, the deterrent effect of the death penalty is further diminished by the fact that we do not hang all our murderers but hang only a few and in private. There is E thus a low probability of death for murderers. In fact Mr Mwambe for the Republic greatly deprecated the practice of hanging the murderers in secret, and advocated public hangings which have a real deterrent effect. So in effect the Republic conceded that hangings in secret as done now have no desired deterrent effect. And it should be pointed out that the deterrent effect would be enhanced if F there was certainty that all murderers would be apprehended and every one would be executed without exception. The situation obtaining now is that many murderers are set free at the President's whims, under the guise of commuting G the sentence of death or pardon. To sum up, we can effectively protect our society against violent crime without employing the death penalty by using life imprisonment sentences.

It has also been argued on behalf of the petitioners, that there is a risk of executing H the innocent. The risk assumes greater proportions when one considers the fact that most poor persons do not obtain good legal representation; as they get lawyers on dock briefs who are paid only Shs 500/= (the equivalent of one US dollar!!!). As result of such poor remuneration the defence counsels do not exert enough effort in such cases. I

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A The possibility of a judicial error, for whatever reason, assumes ever greater importance because the death penalty is irreversible, that is, once carried out that is the end of the matter, it cannot be corrected. And mind you convictions for murder in error (after the appeals) are not rare. Although the argument on the other B side is that there is no evidence that advocates who hold dock briefs conduct their cases poorly, I am of the considered view that the risk of executing the innocent is great under the present system because of the nature of legal representation offered. It is just human nature that it happens so.

C I have already indicated in Part II above that the present system of execution by hanging, long delays in carrying out the death penalty, and the horrible conditions in the death cells cause great torture and mental anguish and that being so it cannot be in public interest to continue using the death penalty. Instead of hanging D the government can change to the use of the electrical chair, or lethal injection or gas chamber which are less cruel. About the long delay in carrying out the sentence, the government should stop using the death penalty until such time that they have devised a better method of reducing the bureaucracy causing the delay. One cannot tell me that it is not possible to reduce the bureaucracy involved E because the Supreme Court of Zimbabwe in the case of The Catholic Commission for Justice and Peace v AG (6) offered a number of good suggestions to that effect. About the horrible conditions in the death cells, the defence of poverty of the government is not a good defence; and the logical F solution is for the government to suspend the death penalty law until such time that it will have enough funds to be able to treat the prisoners on death row as human beings.

Then there is the argument that the death penalty is in public interest because it shows in emphatic terms that the government denounces murder. It is argued that G murder is a crime of the utmost depravity and gravity and therefore it should be treated with the utmost severity when it comes to punishment. Society through the death penalty must denounce the taking of human life in the most emphatic manner possible and it is therefore right that society's extreme disapproval and indignation should be signified by imposing the ultimate penalty of death. By doing H so society reinforces and promotes public respect for life. Any lesser penalty would be inadequate as a punishment for the taking of innocent human life and the suffering which this causes the relatives and loved ones. It has been said even Christianity and Islamic Religion support the death penalty as something morally I

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all right in order to protect society. The State quotes the Bible in Genesis 9:6; A Excodus 21: 12 and 14 and Deuteronomy 9:11 and 12. And for the Moslems the State quotes the Koran 5:36.

However, in my judgment I find that in symbolic terms, the official murdering of killers can hardly be said to foster respect for the sanctity of life. It is contradictory to kill people to show that killing is wrong. Society B can still express its utter condemnation of the act of murder by imposing the most drastic sentence of life imprisonment. The effect upon the public of the death sentence is to brutalize rather than humanize. If we insist on killing murderers we are descending to the same level as the murderers and this debases society. As C the situation obtains now, the State is a teacher and when it kills, it teaches vengeance and hatred. Murderers are not to be loved, nor may they be disregarded. But in allowing them to live, society is saying that sanctity of life is all important. Although the Christian and Islamic Religions have no objection to the D death penalty as such, it is significant to note that they do not support the ugly aspects of the death penalty. For example the Catholic Church (see Newsweek of 30 November 1992 at 53) through Pope Paul II when releasing the new Universal Catechism stated that the death penalty is allowed by the church as a last resort E for the preservation of public order, provided it is carried out in a timely and compassionate manner. As amply demonstrated above the death penalty in Tanzania is not carried out in a timely and compassionate manner. Execution by hanging renders untold suffering; the delay in carrying out the sentence causes untold mental anguish; the horrible conditions in the death cells are meant for non-persons. That cannot be called death penalty in a timely and compassionate F manner. Any properly informed Christian or member of the Islamic religion, cannot support the death penalty under the present form and conditions in which it is carried out.

Then there is this argument that Government must be seen by society to be taking a tough line in relation to violent crime. If it abolishes the death penalty, it is said, this would be taken by persons inclined towards violent crime as a sign that G Government is going soft on crime and this may encourage people to commit violent crimes. However, in my judgment I find that the above argument does not carry much weight. The government is not becoming soft in the fight against crime by doing away with the death penalty. Long term imprisonment is an extremely H severe punishment. Indeed some would say that life imprisonment is far worse than death. I

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A The cost of imprisonment is another argument presented on behalf of the government. The argument is that we should execute dangerous murderers rather than wasting large sums of public money in keeping these persons locked up in maximum security prisons. In my considered opinion, if we are talking about B expense, we should not forget that we are forced to spend large amounts to process through the elaborate system we have to decide whom we should execute. Clearly, it would be cheaper to kill murderers than to keep them locked up for long periods, but it is a morally unacceptable argument that we should kill criminals because it is cheaper to do so. Considerations of economy cannot justify C the taking of life. Moreover the imposition of a sentence of life imprisonment can help to assuage the survivors of the victims of murder in an effective way by way of compensation. Murderers imprisoned for life will be put to work whilst in prison and at least part of the profits generated by such work shall be used to pay

compensation to the survivors. However, that cannot be achieved if the murderers are sentenced to death. D

Then we have the argument of retribution in favour of the Republic. This argument runs along those lines. As many people believe that murderers deserve to die, the law must satisfy the public's thirst for vengeance otherwise the law will fall into E disrepute. This is like saying that the law should string up murderers before the lynch mob does. But it may be argued that even if it is the case that the majority of the public do subscribe to some sort of an eye for an eye retaliation approach in F murder cases, a progressive government will not feel obliged to execute persons simply to satisfy some crude urge for vengeance. Rather it will assume the responsibility for informing the public and seek to influence their views in a more enlightened direction. Often vengeful sentiments stem from fear in the face of increasing rates of violent crime. The death penalty, however, is not an instant G solution to violent crime and the government should not hold it out as such. Retribution has no place in a civilized society, and negates the modern concepts of penology.

The other most important point which puts out law into disrepute and so not in H public interest is the fact that it is arbitrary in that people with mental cases (insane people) are also sentenced to death as if they were normal persons when they did a killing. In the case of Said s/o Mwamwindi v R (26) the accused was sentenced to death (and executed) despite the fact that a famous psychiatrist, one Dr Pendaeli, had testified that the accused had a mental disease called Catatonic Schizophrenia. The same thing happened in the case of I

R v Asha Mkwizu Hauli (27), where two prominent psychiatrists, Dr K F A Rugeiyamu and Dr W S Pendaeli (both consultant psychiatrists), testified that the accused was mentally sick. The same thing happened in Director of Public Prosecutions v Leganzo Nyanje (28) where the psychiatrists had confirmed that the accused was mentally sick of Paranoid Schizophrenia and yet he was B sentenced to death. In that case Mr Justice Mustafa gave a strong dissenting judgment. The majority of the Tanzania Court of Appeal conceded that the law was unjust and outdated and yet they washed their hands as Pontius Pilato did saying that they were impotent to change the law. The late Mwakasendo JA (as he then was) delivering the judgment of the court held: C

> `We wish to state in conclusion that we are fully aware that many doctors with experience of mental diseases have at various times strongly attacked the supposed harshness or D unscientific nature of the present formulation of the law relating to the defence of insanity. These doctors have contended, we think quite rightly, that the present law is based on an "entirely obsolete and misleading conception of the nature of insanity, since insanity does not only, or primarily affect the cognitive or intellectual faculties, but affects the whole personality of the patient, including the will and the emotions". However, it is, our considered view that the E only sure and acceptable mode of alleviating the harshness of the present law is to change the law along the lines proposed by its many critics and not by ignoring its existence. Suffice here

once again to draw the attention of Parliament to the urgent clamour for changing the law in this field to accord with present knowledge of medical science.' F
The same sentiments were expressed by the Tanzania Court of Appeal in the case of R v Agnes Doris Liundi (29) where it said `it is possible, indeed likely, that our law on the issue of insanity is antiquated and out of date. Parliament, in its G wisdom, may wish to amend this particular branch of the law and bring it into line with modern medical knowledge on the subject.' The law, I hold, ought to be amended to bring about the defence of diminished responsibility which entitles the H accused who is mentally sick not to be acquitted altogether but to be found guilty only of manslaughter. They did it in England in 1957 by the Homicide Act and in Uganda they did it in 1967. Our government has persistently refused to rectify the law so as to do away with the injustices caused the present law. The mentally sick who kill are dumped together as murderers as those who commit murder during robbery. Nobody I
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MWALUSANYA J
A in his right senses can defend the present state of the law that it is in public interest. The present state of the law puts our criminal justice system into disrepute.
There is also the political perspective of the death penalty which indicates that the death penalty is not in the public interest. The State does not disclose the fact that B most poor persons kill during robbery because of the poor living conditions and the unequal distribution of the national cake. The grinding poverty and hunger lead to brutalization because the economy has been mismanaged by the government. Instead of the State revealing that the poor kill because of the poor living C conditions, but say because the killer is morally depraved. Why regard the murderer as inherently depraved? The State deliberately washes its hands of the socio-economic conditions it has created. In the institution of State killing, the public is invited to bury knowledge of the conditions which have led to the crime and concentrate on the individual. It is the individual that must be regarded as D depraved not a system founded on ruthless exploitation, economic mismanagement and enforced impoverishment. So, when one accepts State killing, one gives a tacit nod of approval to those who would turn their faces away from the conditions which engender the crime in the first instance. Thus economic E mismanagement by the State leading to impoverishment of the majority is legitimized. Thus the attack on the death penalty is raised to the level of an attack of the ruling clique, who want to maintain the status quo and the privileges which have been conferred upon them by the prevailing invidious economic system. In F order to appease the impoverished people, the State points an accusing finger at the murderers and orders them to be hanged. But in the long run the exploited and impoverished masses will realize who is the real enemy - whether the murderer or the system that has engendered the murderer? It is suggested that there is a G real element of hypocrisy and irony in continuous support of the death penalty by the State when it is the State itself that has largely contributed to the conditions that create murderers.
At the end of the day I find that the Republic has failed to prove on a balance of probabilities that the death penalty is in the public interest. The arguments H adumburated above clearly

show that the death penalty under the present form and conditions is not in the public interest at all.

B. Whether the Law prescribing the death penalty is lawful law

The existing law that prescribes the death penalty is the Penal Code, cap 16. The Tanzania Court of Appeal in the case of Kukutia Ole I

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Pumbun v AG (3), held that any law that restricts or abridges basic human rights A must fulfil two conditions in order to be regarded as a lawful law. First that law should meet the proportionality test, that is, the limitation imposed on the basic human right by such law must not be more than is reasonably necessary to achieve the legitimate object of the government. Secondly the law should not be B arbitrary - that is it should make adequate safeguards against arbitrary decisions, and provide effective controls against abuse by those in authority when using the law.

(i) As regards whether the present law meets the proportionality test, I am of C the considered view that it does not. If the object of the government is to protect society, I am of the view that that can be met by imposing the sentence of life imprisonment which will incapacitate the offender not to commit further crimes. As amply demonstrated above, the death penalty D has only minimal deterrent effect. Moreover the imposition of the death penalty negates the modern concepts of penology which are based on the theory that rehabilitation of the individual criminal is possible. Retribution as an object of punishment is uncouth and outdated and E negates modern concepts of penology. In short it is my finding that imposing the death penalty is more than reasonably necessary to achieve the object of protecting society. Life imprisonment can serve that purpose. The Government has failed to prove on a balance of probabilities (even allowing a margin of appreciation to the state) that the present law restricting the right to life is proportionate and closely tailored to the aim sought to be achieved.

(ii) It is also my considered view that the impugned law is arbitrary in that it does not have adequate safeguards against arbitrary decisions and does not provide effective control against abuse of power by those in authority when using the law. It is arbitrary in three aspects:

First the impugned law empowers the courts to sentence to death the real murderers and also persons who have killed because they are mentally sick (insane or those under diminished responsibility). The real murderers and the mentally sick are indiscriminately dumped together as murderers without distinction. I have amply demonstrated above about this phenomenon. The courts raise their hands in despair and state that they are impotent to do anything about this injustice because their hands are tied by the provisions of

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A the law. So it is crystal clear that the impugned law is not `law' because it does not provide adequate safeguards against arbitrary decisions made by the courts. The law which allows the courts to dump together the mentally sick and real murderers is not good law.

Secondly when the impugned law (the Penal Code) is read together with B s 325(1), (2) and (3) of the Criminal Procedure Act 9 of 1985 you find that the President is empowered to commute the sentence or pardon the convict. This law is arbitrary in that it does not provide effective controls against abuse of power by the President. He is not bound by the recommendation of the convicting judge nor that of the Advisory C Committee. There are no checks or controls whatsoever in the exercise of that power and the decision depends on the President's whims and his idiosyncrasies. This type of law is similar to that of s 6 of the Government Proceedings Act 1967 which gave the Minister for Justice the power to D consent or not to sue the government at his discretion. The law was strongly condemned by the Tanzania Court of Appeal in the case of Kukutia Ole Pumbun v AG (3) and they declared it to be unconstitutional and so void. The same reasoning applies to the law now under discussion. It may be pointed out that the abuse of power by the President is not a far-fetched idea. It is common knowledge to the people E of Tanzania that one pilot Capt Aziz was pardoned from serving a prison sentence simply because the President felt that the said convict had an old mother who depended on him. But how many convicts have old mothers who depend on them and yet they have not been pardoned by the President? F

Thirdly there is no provision under the present law for appeal against the decision of the President. That is contrary to article 13(6)(a) of the Constitution. The decision of the President may be unreasonable, or it may be discriminatory as per article 13(4) and (5) of the Constitution and G yet the prisoner is not allowed to challenge that decision which affects the rights of a citizen. The mere fact that one is sentenced to death does not make him a non-person and a non-citizen who is not entitled to the basic human rights. I don't agree with Mr Mwambe learned State Attorney H who argued that the commutation of a sentence or a pardon is just a privilege and not a right to the prisoner. That the President should exercise his powers of commuting a sentence or pardoning a convict in accordance with the law and the Constitution is not a privilege but a constitutional right of the prisoner. The impugned law is simply not a lawful law.

It is my finding therefore that the death penalty is not in public I

interest and it is not a punishment which is prescribed by a lawful law. A The Republic has completely failed to prove on a balance of probabilities that the death penalty is in public interest and that the impugned law is a lawful law.

V CONCLUSION B

We live in a troubled world with many threats to the security and well-being of our society. In such an atmosphere there is often a tendency to advocate draconian measures to protect society against real and imagined ills. The necessity for such C measures can frequently appear plausible and the most well-intended citizens can be tempted to advocate the principle that `the end justifies the means'. Suffice it to say that the history of the world is replete with the disastrous consequences of the law of man being replaced by the dictates of expediency. A progressive D government will assume the responsibility of informing the public and seek to

influence their views in a more enlightened direction, to the effect that the end does not justify the means.

In the fine, I hold that the two petitioners have managed to prove on a balance of probabilities that the death penalty is a cruel, inhuman and degrading punishment E and or treatment and also that it offends the right to dignity of man in the process of execution of the sentence. At the same time the Republic has failed to prove on a balance of probabilities that the impugned law is in the public interest and that it is a lawful law under article 30(2) of the Constitution. It is therefore my finding that the death penalty is unconstitutional and so void as per article 64(5) of the Constitution. Order accordingly. F

1994 TLR p174

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[zRPz]ROBERT MGIRE v REPUBLIC 1994 TLR 174 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Kisanga JJA, Omar JJA and Mnzavas JJA

B CRIMINAL APPEAL NO. 51 OF 1994

25 July, 1994

(From the conviction of the High Court of Tanzania at Mwanza, Mrema, J)

Flynote

C Criminal Practice and Procedure - Appeal - Summary dismissal of appeal - Whether summary dismissal of appeal without re-appraisal of evidence proper.

-Headnote

D This appeal was against the summary dismissal decision of the High Court on the appellants appeal against conviction by the District Court for house breaking. Both counsels for the appellant and the respondent concurred that this was not proper case for summary dismissal.

Held: the evidence on record on this case required a re-appraisal and had that been done the judge would have found that there was reasonable doubt as to the appellant's guilt. E

Case Information

Appeal allowed.

Kahangwa, for the appellant.

F Lyimo, for the respondent.

[zJDz]Judgment

Kisanga, JA, delivered the following considered reasons for judgment:

G When this appeal came up for hearing, counsel for both sides addressed us and at the end of it we allowed the appeal but reserved our reasons to a later date. We now give reasons for doing so.

This was a second appeal arising from the decision of the High Court (Mrema, J) dismissing summarily the appellant's appeal against conviction by the District H Court for house breaking and the sentence of five years' imprisonment. Before us the appellant was represented by Mr

Kahangwa, learned advocate, while Mr Lyimo, learned Principal State Attorney, was for the respondent Republic. Mr Lyimo did not seek to support the appellant's conviction. He shared Mr Kahangwa's view that this was not a proper case for summary rejection by the High Court. The evidence on record was such as did require re-appraisal, and that had this been done the learned judge I

1994 TLR p175

KISANGA JA

could not have upheld the decision of the District Court. With respect we agree A with the concurrent views of both counsel.

Very briefly the facts of the case were that the complainant's house was broken into at night and a number of items of property were stolen from there. About three days later the appellant was found wearing a T-shirt which was adequately identified as part of the property stolen from the complainant's house. On being B asked, he immediately explained that he had bought it from his co-accused (first accused), and another co-accused (third accused) who was then present claimed that he witnessed the said transaction between the appellant and the first accused. In their defences at the trial, both the first and the third accused persons C denied any involvement in or witnessing the sale of the T-shirt in question to the appellant. However, both the first accused and the appellant who was the second accused, were convicted for the offence already mentioned; the third accused was acquitted. Again as intimated earlier, their appeals to the High Court were D summarily rejected, and while the appellant has appealed further to this Court, the first accused has not.

The complainant's neighbour (PW2) watched the incident that night through the E window in his own house and by the help of electric security lights stated that he saw and identified the first and third accused as being among the four persons who broke into the complainant's house. However, he categorically stated that he did not see the appellant there. Now the question is, if the appellant took part in the commission of the offence, why did PW2 not see and identify him? F

The appellant was found wearing the complainant's T-shirt and upon being asked he readily explained that he had bought it from first accused, and that explanation was duly supported by third accused who was present them. We are finally of the G view that that explanation could possibly be true. Indeed the first and third accused persons in their defences at the trial completely denied any involvement touching on the T-shirt in question. That, of course, could only be expected because it was in their interest to try to prevent the shift of blame to them. The H view, that the appellant's explanation could possibly be true, finds support in the appellant wearing openly the complainant's T-shirt bearing the complainant's initials RZ on it. If the appellant were the thief or a guilty purchaser or receiver, it seems to us most unlikely that he would have worn it so openly and in the locality where the complainant could reach easily. I

1994 TLR p176

A We are certain that had the learned judge addressed himself to these matters he would have found that at least they did raise a reasonable doubt in his mind as to the appellant's guilt. It is for that reason that we upheld the submissions by counsel for both sides and allowed the appeal,

quashing the conviction and setting aside the sentence with the order to release the appellant forthwith unless he was otherwise lawfully held in custody. B
1994 TLR p176

[zRPz]RUNGU JUMA v REPUBLIC 1994 TLR 176 (CA)

Court Court of Appeal of Tanzania - Mwanza D
Judge Kisanga JJA, Omar JJA and Mnzavas JJA

CRIMINAL APPEAL NO. 105 OF 1993
25 July, 1994 E
(From the decision of the High Court of Tanzania at Mwanza, Masanche, J)
Flynote
F Evidence - Evidence of a child of tender years - Whether such evidence may be received without a voire dire - Section 127(2) of the Evidence Act 1967.
Evidence - Evidence of a child of tender years - Corroboration - Whether a child's evidence may be corroborated by the defence evidence of the accused. G
Criminal Law - Robbery with violence - Appropriate sentence for robbery with violence - Sections 285 and 286 of the Penal Code, and the Minimum Sentences Act 1972 as amended by Act No 10 of 1989. H
-Headnote
The appellant was convicted of robbery with violence and sentenced to fifteen years imprisonment by the district court of Musoma. His appeal to the High Court was unsuccessful and, instead, the sentence was enhanced to thirty years. He appealed further to the Court of Appeal. His main ground was that the conviction was wrong because it was based on the evidence of the complainant, a child of tender years. I
1994 TLR p177
Held: A

(i) As the offence was committed in broad daylight, and the appellant was well known to the complainant before the incident, and the complainant immediately mentioned the appellant to his father and later to the Police that he was the one who assaulted him and stole his cattle, it cannot be said that the complainant could have been mistaken in the identification of the appellant as his assailant and robber;

(i) As the offence was committed in broad daylight, and the appellant was well known to the complainant before the incident, and the complainant immediately mentioned the appellant to his father and later to the Police that he was the one who assaulted him and stole his cattle, it cannot be said that the complaint could have been mistaken in the identification of the appellant as his assailant and robber; B

(ii) A child's evidence may be corroborated by the defence of the accused and in this case the appellant's admission that he was present at the scene of the crime on the material day

and that it was the complainant's description of the appellant to the Police that led to his (the appellant's) arrest does, to some extent, corroborate the complainant's evidence; C

(iii) On the totality of the evidence the appellant was rightly convicted of robbery with violence as charged and in view of the amendment of the Minimum Sentences Act 1972 by Act 10 of 1989 the High Court rightly enhanced the sentence to thirty years imprisonment. D

Case Information

Appeal dismissed.

Case referred to:

R v Okello Bayenzi s/o Anyaro [1938] 5 EACA 140.

Lyimo, for the Republic. E

[zJDz]Judgment

Mnzavas, JA, delivered the following considered judgment of the Court:

There was no dispute in this case that one, Malima s/o Mang'azi, PW1, had his F sixteen head of cattle stolen on 13 October 1991 while grazing them at Nyamike Village within the district of Musoma in Mara region. It was the case for the prosecution that immediately before such stealing the thief attacked Malima Mang'azi with a panga causing him to suffer grievous harm. G

Investigation regarding the incident culminated to the arrest of the appellant and a charge of robbery with violence contrary to s 285 and 286 of the Penal Code was preferred against him. In the alternative to the charge of robbery the appellant was charged with causing grievous harm contrary to s 225 of the Penal Code.

The district court at Musoma heard the case against the appellant and after a full trial the learned resident magistrate came to the conclusion that the charge of robbery with violence against the appellant had been proved beyond reasonable doubt. The appellant was accordingly convicted and sentenced to fifteen years imprison-

A ment. In addition the district court imposed corporal punishment of twelve strokes of the cane and an order that the appellant refunds sixteen head of cattle to the complainant, PW1.

Dissatisfied with the decision of the district court the appellant appealed to the High Court on the ground that the district court erred in acting on the evidence of PW1 (a child of tender age) that he had identified him (appellant) as his assailant B and robber. In dealing with the question whether or not the complainant had identified the appellant as the robber the High Court (Masanche, J), said inter alia:

C `... Issues of credibility as is known are best judged by the person who tries the case. This is because the judge is able to watch the demeanour of the witnesses who testify.... However one aspect of the case: PW.1, the complainant, is said to be a juvenile. The magistrate I notice, has recorded that Section 127(5) of the Evidence Act had been complied with. The D learned magistrate however, did not conduct a voire dire at least to show why he thought the witness understood the nature of oath.'

After quoting the provisions of sub-sections (2) and (3) of s 127 of the Evidence Act, 1967, the learned judge said: E

`Coming to the instant case, I am in no doubt whatsoever, satisfied that the child must have understood the nature of oath. Even if for sake of argument, the child did not understand the nature of oath I am satisfied that the child had sufficient intelligence "to justify the reception of F evidence". . . The complainant in his evidence in chief, was able to break down the numbers with regard to what beasts he had. He said he had 184 head of cattle, 29 goats and 3 sheep . . . Such breakdown can only be done by an intelligent boy.'

G The learned judge then concluded that `the conviction was well deserved' and dismissed the appeal against conviction. As for the sentence of fifteen years imprisonment the learned judge was of the view that robbery with violence where an offensive weapon is used, as was in this case, the appellant should have been sentences to thirty years imprisonment under the Minimum Sentences Act, 1972, H as amended by Act No. 10 of 1989. Accordingly the sentence of fifteen years imprisonment was enhanced to thirty years imprisonment.

Still dissatisfied the appellant has come to this court.

Before us the appellant who was not represented by a counsel recapitulated his defence in the High Court that the district court erred in convicting him of the evidence of the complainant, PW1, I

who was a child of tender age. He also told the court that the court of first instance A refused him to call some of his witnesses. He recapitulated his defence in the district court that on the material day complainant's cattle had strayed into his (appellant's) shamba and that he reported to his cell leader who gave him a letter to the agricultural officer who came to the shamba and assessed the extent of damage caused. According to his defence while he was away looking for the cell B leader and the agricultural officer the appellant and his family cooked up a story that he had robbed him (PW1's) of his cattle.

In rebuttal Mr Lyimo, learned Principal State Attorney, told the court that the C appellant did not tell the trial court that he had more witnesses to call after DW1 and DW2 had given evidence. In support of his argument the court was referred to page ten of the typed proceedings where the appellant is recorded to have told the court: `I have nothing to say, as I intend to call no other witness'. If this statement D by the appellant is anything to go by appellant's defence before us that he was refused to call some of his witnesses is bogus and an afterthought.

The learned Principal State Attorney conceded to appellant's argument that the complainant was a child of tender age and that his real age was not established. E Equally it was agreed that the learned trial magistrate did not subject the complainant to a voire dire to enable him to form an opinion whether the complainant was `possessed of sufficient intelligence to justify the reception of his evidence' as required under s 127(2) of the Evidence Act, 1967. F

However despite this omission by the learned resident magistrate Mr Lyimo submitted that the appellant admitted in his defence that he was at the scene of crime on the material day and that it was complainant's description of the appellant to the police that led to the arrest of the

appellant. This, it was argued by the Republic, showed that the complainant could not have been mistaken in the identification of the appellant as his assailant and robber. G

The learned Principal State Attorney invited the court to dismiss the appeal. With respect we agree that on the evidence tendered in the court of first instance the appellant was rightly convicted of the offence of robbery with violence as charged H the non-compliance of s 127(2) of the Evidence Act, 1967 notwithstanding. The offence was committed in broad daylight, the appellant was well known to the complainant before the incident and the complainant immediately mentioned the appellant to his father and later to the police at Kiabakari that he was the one who assaulted him and stole his I

1994 TLR p180

MNZAVAS JA

A cattle. Apparently the evidence showed that soon after the incident (at about 8am) the appellant decamped from his house and only surfaced in the evening, at 7 pm, and handed himself to the Police Station after finding that his family had been arrested. We are also of the view that appellant's admission that he was present at the scene of the crime on the material day does to some extent B corroborate complainant's evidence that it was he who attacked the appellant and stole his cattle.

That a child's evidence may be corroborated by the defence of the accused is evident from the decision in R v Okello Byenzi s/o Anyaro (1). C

Before we conclude we would also like to mention another blatant lie by the appellant. Before us he said `the complainant did not have any injuries on his body'. This statement is diametrically opposed by his statement when cross-examined by the public prosecutor. There he answered `I don't know how he sustained the injury on his left shoulder'. D

The medical report - exhibit P1 was to the effect that the complainant had a cut wound on his left shoulder which was four inches long and two inches deep.

E On the totality on the evidence we are satisfied in our own minds that the appellant was rightly convicted of the offence of robbery with violence as charged. In view of the amendment of the Minimum Sentences Act, 1972 by Act No. 10 of 1989 the learned judge was right in enhancing the sentence of fifteen years imprisonment imposed by the district court to one of thirty years imprisonment. Apparently the High Court judgment is silent regarding the sentence of twelve F strokes corporal punishment imposed by the district court. Having convicted the appellant of robbery with violence the district court had no alternative but to impose corporal punishment. Such sentence is mandatory under the Minimum Sentences Act, 1972 as amended by Act No. 10 of 1989. In the event we affirm the sentence G of thirty years imprisonment awarded by the High Court and that of twelve strokes corporal punishment imposed by the district court. The order of compensation by the district court also stands.

In conclusion the appeal is hereby dismissed in its entirety. H

1994 TLR p181

A

[zRPz]MICHAEL LUHIYE v REPUBLIC 1994 TLR 181 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Kisanga JJA, Omar JJA and Mnzavas JJA

CRIMINAL APPEAL NO. 77 OF 1993 B
1 August, 1994
(Appeal from the conviction of the High Court of Tanzania at Tabora, Korosso, J) C
Flynote
Criminal Practice and Procedure - Trial with assessors - Assessors not given opportunity to cross-examine witnesses individually - Effect thereof.
Evidence - Confession made involuntary - Circumstances of confession not seriously and D comprehensively considered by the court - Whether proper.
Evidence - Corroboration - Uncorroborated retracted confession - Whether courts may convict on a retracted confession without corroboration.
-Headnote
The appellant is this case appealed against conviction the murder contrary to s E 196 of the Penal Code. He argued that the trial was a nullity as it was conducted without the aid of assessors; that the assessors were not given opportunity to cross-examine the witnesses individually, instead they cross-examined them together and the witnesses answered them together; that the confession from him F to the police was involuntary as he was subjected to violence before he made it; and that hsi confession was retracted but was nevertheless relied upon by the court without independent evidence to corroborate it.
Held:

(i) In a trial with assessors the Trial Judge should allow each assessor who wishes to cross-examine the witness individually and the answer thereto should be recorded separately; therefore it was improper and an irregularity not to have done so in this case;

(ii) For a trial in a criminal case to be a nullity it must be shown that the G irregularity was such that it prejudiced the accused and therefore occasioned failure of justice; in this case the Trial Judge gave a summing-up of the evidence to the assessors, and took into account as to the guilt or otherwise of the appellant and therefore it cannot be declared a nullity;

(iii) It is always desirable to look for corroboration in support of a retracted confession before acting on it but a court may convict on retracted H confession even without corroboration. I
1994 TLR p182
Case Information
A Appeal dismissed.
Cases referred to:

(1) R v Gae s/o Maimba and Another [1945] 12 EACA 82.
(2) R v Kaperere s/o Mwaya [1948] 15 EACA 56.
(3) Tuwamoi v Uganda [1967] EA 84.

B Muhula, for the appellant.

Kaduri, for the respondent.
[zJDz]Judgment
Mnzavas, JA, delivered the following considered judgment of the Court: C
The appellant, Michael Luhiye, was charged with and convicted of murder contrary to s 196 of the Penal Code by the High Court, (Korosso, J), sitting in Tabora; and the mandatory sentence of death was handed down.
Dissatisfied with the finding of the High Court he has come to this court. D
The charge of murder alleged that the appellant on or about 19 July 1989 at the Jioneemwenyewe village within Urambo district, Tabora region, murdered one, Mohamed Rashidi.
E After a full trial the High Court (Korosso, J) was satisfied that the prosecution had proved the charge of murder against the appellant beyond reasonable doubt and, as already mentioned above, convicted him and imposed the death sentence.
F Before us Mr Muhula, learned defence counsel complained that the trial was a nullity as, it was argued, it was conducted without the aid of assessors. In support of his argument Mr Muhula referred the Court to pages 6, 7, 12 and 15 of the proceedings where it is shown that the three assessors were not given the opportunity to cross-examine the witnesses individually. The record appeared to G show that all the assessors cross-examined the witnesses together and the witnesses answered them together. This procedure was, according to the learned counsel's submission, tantamount to trying the case without the aid of assessors and we were invited to make a finding that the trial was a nullity.
H In the alternative, but without prejudice to the above argument, the learned defence counsel submitted that the trial court did not seriously and comprehensively consider the circumstances under which the appellant confessed to the killing. It was argued that had the learned judge properly directed his mind to the evidence before him he would have found that appellant's confession to the police - exhibit C, was involuntary as, it was submitted, the appel- I

lant was subjected to violence before he gave his confessional statement. A
As to the evidence of the village chairman, (PW3), who testified that the appellant had voluntarily confessed to the killing of the deceased and that the appellant gave the reason for the killing as deceased's taking his (appellant's) fiancÅe and deceased making him (appellant) impotent by means of witchcraft, Mr Muhula B argued that the appellant had retracted his confession and that there was no independent evidence that corroborated the retracted confession that it was the appellant who murdered the deceased. The learned defence counsel prayed that the appeal be upheld and appellant be set free. C
In rebuttal Mr Kaduri, learned Senior State Attorney, conceded that it was irregular on the part of the learned trial judge to record the cross-examination of the assessors in an `omnibus' fashion but it was argued that the irregularity did not occasion failure of justice. D
As for the argument that the retracted confession should not have been relied upon by the trial judge to convict the appellant Mr Kaduri, learned counsel for the Republic, submitted that the confession of the appellant was so detailed that it could not have been narrated by any person

other than the appellant. It was argued E that there was no evidence that the appellant was subjected to such violence as would have induced him to say to the police what he would not have said.

The court was asked to find that appellant's cautioned statement to the police and his statement to the chairman (PW 3), that it was he who killed the deceased were F free and voluntary and that the appeal should be dismissed.

We have minutely examined the evidence tendered before the court of first instance and we agree with the learned defence counsel that it was improper for the trial judge to allow the assessors to participate in the trial of the case the way G they participated. In a trial with assessors, as it was in this case, each assessor (if he wishes to cross-examine) has to cross-examine the witness/s individually and the answers thereto should be recorded separately.

There was clearly an irregularity in the way the assessors participated in the H hearing of this case. But as Mr Muhula, learned defence counsel, will no doubt agree on reflection, it is one thing to say that there was an irregularity in the manner the assessors participated in the hearing of the case, and quite another thing to say that such irregularity vitiated the proceedings. Before pronouncing any proceeding in a criminal case to be a nullity it must be shown that the I

A irregularity was such that it prejudiced the accused and therefore occasioned failure of justice.

In the present case it is amply clear that the trial court gave a summing up of the evidence to the assessors' and taking into account their opinions as to the guilt or otherwise of the appellant it cannot, with any stretch of the imagination, be said that the trial of the appellant was conducted without the aid of assessors. B

It is our considered view that the irregularity did not in any way occasion failure of justice. That disposes the first ground of appeal.

Coming to the second ground of appeal that there was no corroboration of C appellant's retracted confession and that the learned trial judge did not warn himself of the danger of basing a conviction on such evidence we, with respect agree with the learned defence counsel, that it is always desirable to look for corroboration in support of a confession which has been retracted before acting on such confession to the detriment of an accused person; but with even greater D respect to the learned counsel there is a long and unbroken chain of authorities that a court may convict on a retracted confession even without corroboration.

In the case of R v Gae s/o Maimba and Another (1) it was held that: E

> `There is no rule of law or practice making corroboration of a retracted confession essential. Corroboration of a retracted confession is desirable but if the court is fully satisfied that the confession cannot but be true, there is no reason in law why it should not act upon it.' F

In another decision three years later the Eastern Africa Court of Appeal said in R v Kaperere s/o Mwaya (2)

G `A Court may convict on a retracted confession even without corroboration though such confession must be received with great caution and reserve.'

There are many other decisions by the Eastern African Court of Appeal, the East Africa Court of Appeal and the Tanzania Court of Appeal to the same effect. To H mention the celebrated decision in the case of Tuwamoi v Uganda (3) the court had this to say inter alia:

`We would summarise the position thus: a trial court should accept any confession which has been retracted or repudiated with caution, and must before founding a conviction on such a confession be fully satisfied in all the circumstances of the case that the confession is I

1994 TLR p185

MNZAVAS JA

true. The same standard of proof is required in all cases and usually a court will only set on A the confession if corroborated in some material particulars by independent evidence accepted by the court. But corroboration is not necessary in law and the court may act on a confession alone if it is fully satisfied after considering all the material points and surrounding circumstances that the confession cannot but be true.' B

Coming to the case in hand it is true as rightly argued by the learned defence counsel, that the learned judge did not fully advert his mind to the law that a retracted confession should be accepted with caution but in his judgment he appears to have been satisfied in his mind that taking into account the circumstances of the case the confession could not but be true. C

That he was of that view is evident from his pronouncement on page 33 of the typed judgment where he says inter alia: D

`... I am fully convinced that the accused went to the chairman and confessed killing the deceased.... PW3 is a highly respected person in the village of Jionee-mwenyewo. He has been the village chairman for seven years in succession. It is difficult to entertain the least belief that PW3 could have decided to implicate the accused in this capital offence.... There E was no evidence that PW3 was related to the deceased.... The contents in exhibit C1 are so detailed and intimate that nobody else but the accused could have made it from the treasures of his heart.'

The learned trial judge then concluded that appellant's confession to the police - F exhibit C1 was free and voluntary and convicted the appellant of the offence of murder as charged.

With respect to the learned judge we agree with his finding that appellant's cautioned statement to the police was so detailed, elaborate and thorough that no G other person could have made the statement but the appellant. His cautioned statement to the effect that he decided to attack the deceased with a panga and a stick on the head after he was told by witch doctors that it was the deceased who had made him (appellant) impotent by means of a witchcraft was so personal that no other person would have such information. So was his statement that he had H visited Government hospitals in Urambo and Kibondo and a number of witch doctors for treatment but that he could not regain his virility.

And, to crown it all, his cautioned statement to the police officer, PW1, that he cut the deceased on the head with a panga tallied with the post-mortem report - exhibit P1 which showed that the deceased I

1994 TLR p186

A had a cut wound on the head. The evidence amply corroborated appellant's retracted confession; if corroboration was necessary. Maybe it is also not irrelevant to mention that it is

the appellant who led the village chairman (PW3) to his (appellant's) house where he produced the panga he had used in attacking the deceased.

B For evidence to be so consistent the only common denominator, save perjury, must be truth. Appellant's retracted confession was, in our considered view, a clumsy attempt to evade the consequences of his acts.

C We are satisfied that the appellant was properly convicted of the offence of murder as charged. The sentence of death is mandatory. In the event we order that the appeal be dismissed in it entirety.

1994 TLR p186

E

[zRPz]NYIGOSO MASOLWA v REPUBLIC 1994 TLR 186 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Kisanga JJA, Omar JJA and Mnzavas JJA

CRIMINAL APPEAL NO. 798 OF 1993 F
1 August, 1994
(Appeal from the conviction and sentence of the High Court of Tanzania at Tabora, Korosso, J)
Flynote

G Criminal Practice and Procedure - Identification of an accused - Identification in conditions not favourable - Whether reliable.

-Headnote

The appellant appealed against conviction for murder. The conviction was based on the evidence of the wife of the deceased who was the sole identifying witness that she identified the accused when their house was broken into by two bandits at night. The appellant denied ever being at the house of the deceased or slashing H him with a panga.

Held:

(i) Circumstances prevailing in the room at the time of the attack were not favourable for proper identification of attackers and the witness never reported having identified the attacker to the ten cell leader nor to the people who gathered at the scene. I

1994 TLR p187

Case Information

Appeal allowed. A
No cases referred.
Magongo, for the appellant.
Kaduri, for the respondent.

[zJDz]Judgment

Omar, JA, delivered the following considered judgment of the Court: B

The appellant Nyigoso s/o Masolwa was convicted on a charge of murder contrary to s 196 of the Penal Code and was sentenced to death. He is now appealing. C

PW1 Modosta Luchoga stated that she was at home with her husband the deceased in old Shinyanga Village on the night of 5 August 1987 when two bandits broke down their front door and entered, and straight away started attacking her by cutting her on the head and on the left hand. She fell down and became D unconscious but before that she said she was able to identify the appellant by the torches each one of them carried. They flashed their torches straight at her face and the light dazzled her but the appellant was illuminated on the face by the torch of his colleague and she was able to identify him as Nyigoso Masolwa the brother of the former wife of her husband Amos Matiga, the deceased. At that time when E she ran to the front door her husband dived under the bed and she heard the bandits say `here he is'. Apparently he was pulled out from under the bed and cut to pieces. When she regained consciousness after the attackers had gone she F went and reported the matter to the ten cell leader, one Ngolo Shumbi. She further said that the cell leader did not ask her who had attacked her. She was feeling severe pains that night that is why she did not tell the cell leader or any of the persons who had gathered at her home, who her attackers were. She could not recognise the other attacker. The appellant whom she identified had put on a red shirt, the other bandit whom she could not see was wearing a black shirt. G

The rest of the witnesses PW2 and PW3 talked of the dispute between the father of the appellant and deceased over the bride price of seventeen head of cattle which the deceased demanded to be given back after he had divorced the sister of H the appellant. PW2 Leonard s/o Kankutebe who was the acting Divisional Secretary in Shinyanga was handed a letter by the District Commissioner directing him to collect seventeen head of cattle from the father of the appellant and hand them to the deceased as per court order. The handing over was to be done on 6 August 1987. The deceased died on 5 August 1987 one day earlier. I

1994 TLR p188

OMAR JA

A The appellant in his defence denied over being at the house of the deceased or slashing him with a panga. He said he was a home on the night of 4 August 1987. He said he knew about the dispute over bride price and preparations were under way to pay back deceased's cattle. Mr Magongo learned counsel for the appellant B submitted that the identification of the appellant by PW1 left much to be desired. PW1 never mentioned the appellant immediately after the attack. She never reported having identified the appellant to the ten cell leader or to the people who had gathered at the scene.

He submitted that PW1 never identified the appellant at all and he quoted the C following lines in the judgment of the trial court and concluded that they were mere assumptions. The quoted lines are:

`Believing as I do that each of the two attackers had his own torch and since they were looking at random to locate the position of the victims it is reasonable to see the urgency of their part to keep their torch alight all the time. The fact that they slashed PW1 on the head as well with a D panga they had (were) criminally disposed to kill PW1 as well so that when she dropped to the ground they had mistaken her for a dead person. Even if they had not intended to kill PW1 time to them was very important soon after the accused and the other attacker had

got into the house of the deceased. The possibility of the accused and the other attacker carelessly E flashing torch light would appear the most reasonable assumption. It is most likely that in their carelessly flashing the light the accused became exposed to the blazing torch light held by the other person.'

F These arguments by the Trial Judge Mr Magongo covered in his second ground of appeal which is `that the finding and the conclusion arrived at by the honourable Trial Judge in his decision are indefensible both in fact and law.'

G Mr Kaduri learned State Attorney in reply stated that there were two torches, one was flashed on to the appellant who had already cut her and it was then that she identified him. Besides, PW1 knew the appellant for quite a long time.

We have gone through the evidence of PW1 the sole identifying witness and are of the view that circumstances prevailing in that room at the time of the attack were H not favourable for proper identification of the attackers and therefore the testimony of PW1 is unreliable in this respect.

We therefore allow the appeal, quash the conviction and sentence, and order that the appellant be set free unless he is otherwise lawfully held. I

1994 TLR p189

A

[zRPz]WILFRED LUKAGO v REPUBLIC 1994 TLR 189 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Kisanga JJA, Omar JJA and Mnzavas JJA

CRIMINAL APPEAL NO. 75 OF 1993 B

1 August, 1994

(From the conviction of the High Court of Tanzania at Tabora, Korosso, J) C

Flynote

Criminal Law - Murder - Contradictions in evidence regarding circumstances in which deceased was killed - Whether may be relied on for conviction of murder.

-Headnote

The appellant was the husband of one Elizabeth Lukago (PW1). After years of a D happy marriage blessed with six children, some misunderstandings developed which led to the appellant's wife having a boyfriend, and the appellant and his wife living separately. On the material day the appellant went to the house of PW1 where he met his wife and her boyfriend, but later left. PW1 and her boyfriend also E went out for a visit, during their return they were offered a lift by a motor vehicle. Thereafter the evidence was not clear as to what exactly happened but all in all PW1's boyfriend was subsequently found killed. The appellant was charged and convicted of murder. The conviction was largely based on the evidence of PW1 which was, however, contradictory in some respects. F

Held: The prosecution evidence had some serious contradictions and, in the circumstances of this case, it was impossible to assess the credibility of the appellant's wife whose evidence was heavily relied on in reaching conviction; all these raise a grave doubt as to the appellant's guilt. G

Case Information

Appeal allowed.

No cases referred to.

Nasimire, counsel for appellant.

Kaduri, counsel for the respondent. H

[zJDz]Judgment

Kisanga, JA, delivered the considered judgment of the Court:

When this appeal came up for hearing we heard counsel for both sides after which we allowed it, quashing the conviction for murder and setting aside the sentence with an order for the appellant's I

1994 TLR p190

KISANGA JA

A immediate release. We reserved our reasons for judgment, which we now proceed to give.

The appellant is the husband of one Elizabeth Lukago (PW1). For quite some time the two lived happily as husband and wife, and they had six children between them. However, close to the happening of these events they fell into family misunderstandings which caused PW1 to develop the relationship of boyfriend B with the deceased. At the material time PW1 and the appellant, although husband and wife, were living separately.

In the morning of the material day the appellant had gone to the house where PW1 C lived and found PW1 and the deceased, her boyfriend there. He went away after some time but made no comment about his finding the deceased there. After some time PW1 and the deceased went out together. The deceased had asked PW1 to escort him to visit the family of one Mwakibete, and from there they visited D Tabora Boys' and Girls' Secondary Schools. After leaving the schools at about 3.00 pm, and as they were walking along, a motor vehicle came from the opposite direction and on reaching them the occupants thereof offered them a lift.

Thereafter the evidence is so unsatisfactory that Mr Nasimire, learned advocate E for the appellant, submitted in effect that no court properly directing itself could have grounded the appellant's conviction on it. Mr Kaduri, learned Senior State Attorney appearing for the respondent Republic, concurred and did not wish to support the conviction.

F The rest of the prosecution case depended entirely on the evidence of PW1. She stated that upon the occupants of the motor vehicle offering them a lift, the deceased accepted provided that the motor vehicle went in their direction. Whereupon the driver reversed and headed in their direction. One of the G passengers of the motor vehicle was the appellant and another one was Mrs Mwakibete to whose house PW1 and the deceased had been that morning only to find her out at work. PW1 did not know Mrs Mwakibete before, but she was identified to her by Mrs Mwakibete's son (PW2) who had joined PW1 and the H deceased as they were walking along, and the three were together when they met the motor vehicle. PW1 and the deceased got into

the motor vehicle leaving Mwakibete's son on the ground. Then as the motor vehicle drove off fast, PW1 and the deceased were blindfolded by some of the passengers in the motor vehicle, using cloth material for the purpose. At some point further on the motor vehicle stopped. PW1 and the deceased were forced out of the motor vehicle after which they I

1994 TLR p191

KISANGA JA

were attacked in the most brutal manner. PW1 lost consciousness for over two A months as a result of the severe attacks. The dead body of the deceased was found lying on the ground under a tree. It had marks of violence on the head, and in the doctor's opinion death was due to head injury and intracranial haemorrhage. In his defence, the appellant flatly denied the charge of murder. B

The prosecution evidence was unsatisfactory in a number of ways. First, it involved serious contradictions. PW1 is contradicted when she said that Mrs Mwakibete was in the motor vehicle which kidnapped her and the deceased, and that it is Mrs Mwakibete's son who identified his mother to her (PW1). For, C Mwakibete's son (PW2) denied being in the company of PW1 and the deceased at the time of meeting the alleged motor vehicle. Mrs Mwakibete who gave evidence for the defence (DW2) equally denied being a passenger in the said motor vehicle or otherwise being at the scene as claimed by PW1. The trial judge in convicting the appellant, relied heavily on the evidence of PW1 whom he found to be a truthful witness. However he did not attempt to resolve these contradictions in the D evidence. He did not say why Mrs Mwakibete and her son should deliberately testify unfavourably against the deceased who was shown to have had some friendly connections with the Mwakibete family, as against the appellant who was a total stranger to that family. E

Secondly, PW1 admitted making two statements to the police about the incident. She further admitted that those statements might be different because of the brain injury that she sustained which, as already noted, rendered her unconscious for over two months. Now, a number of questions arise from this. First, which of the F two statements was the basis of her evidence in court, or was that evidence based on both statements? The learned judge never addressed himself to that question and on the evidence we can find no clue as to what the answer is. In those circumstances it becomes impossible to assess her credibility, that is, to G determine the extent to which her evidence was or was not affected by the severe brain injuries which she sustained.

And lastly, in convicting the appellant the court also relied on the evidence that H some time during the investigation of the case an axe was recovered from the appellant's house which had marks of human blood on its blade and the wooden handle. While such evidence served to augment suspicion on the appellant, it did not advance the prosecution case any much further. For, it was not shown whose blood it was. It could be that of the person or persons who occupied the house and who used the axe. I

1994 TLR p192

A In our view, all these points taken together raise a grave doubt as to the appellant's guilt, and had the learned trial judge addressed his mind to them he would not have convicted the

appellant. It is for these reasons that we allowed the appeal, quashed the conviction and set aside the sentence and ordered the appellant's immediate release from prison unless he was otherwise lawfully held. B

1994 TLR p192

C

[zRPz]MASOLELE GENERAL AGENCIES v AFRICAN INLAND CHURCH TANZANIA 1994 TLR 192 (CA)

Court Court of Appeal of Tanzania - Mwanza D

Judge Omar JJA, Mnzavas JJA and Mfalila JJA

CIVIL APPEAL NO. 13 OF 1994

9 August, 1994

E (From the decision of the High Court of Tanzania at Mwanza, (Masanche, J)

Flynote

Civil Practice and Procedure - Claim for loss of profits - Need for specific proof of specific claims - Burden of proof. F

-Headnote

This was an appeal against an ex-parte judgment of the High Court dismissing a claim for loss of profits by the appellant company to the sum of 1.6 million shillings.

G Having won the tender for the supply of iron bars, the appellant company supplied 225 pieces worth Shs 1,023,700/=, which amount was paid. However, the appellant claimed that the parties had agreed that payment was to be made upon supply, and the respondent failed to honour this agreement and made payments almost a year after delivery of the last supply.

H It was the appellant's case that if payment had been timely, it would have realised a profit of Shs 1,600,000/= from its cement business. The claim was dismissed by the Trial Judge on the basis that the claimed loss of profit had not been proved.

Held:

(i) Once a claim for a specific item is made, that claim must be strictly proved, else there would be no difference between a specific claim and I

1994 TLR p193

a general one; the Trial Judge rightly dismissed the claim for loss of profit A because it was not proved;

(ii) A bill of costs is nothing more than tabulated costs incurred by a party in the conduct of the case and which he seeks to be reimbursed by the other party. It is not an entitlement that may be claimed in the body of a suit.

Case Information

Appeal dismissed. B

No case referred to.

Kahangawa, for the appellant. C

[zJDz]Judgment
Mfalila, JA, delivered the following considered judgment of the Court:
This appeal is against the ex-parte judgment delivered by Masanche, J dismissing a claim for loss of profits by the appellant company against the respondent the D African Inland Church Tanzania. In the suit, the appellant company claimed the sum of Shs 1,660,000/= being loss of business profits it allegedly suffered in the following circumstances: That in January 1990, the respondent church floated a tender for the supply of iron bars. The appellant company won the tender and supplied 225 pieces worth Shs 1,023,700/=. The whole of this amount has been E paid. However, the appellant claimed that both parties had agreed that payment would be made upon supply, but that the respondent failed to honour this agreement and made the payment almost a year later after delivery of the last supply on 22 December 1990. The appellant's case was that if payment had been F made timeously, it would have realised a profit of Shs 1,660,000/= from its cement business between January and September, 1991.
In dismissing this claim, the trial judge held that loss of profits in the cement business had not been proved. In his view claim for loss of profits, like a claim for special damages, must be strictly proved. G
In his memorandum of appeal, the appellant complained that the trial judge misdirected himself on the law as to the standard of proof with regard to loss of business profits as particularised in paragraph 6 of the plaint. At the hearing of this appeal, Mr Kakangwa learned advocate who appeared for the appellant, made a H valiant attempt to expand on this point. But on our part, we are satisfied that the trial judge's views on the burden of proof were correct. Once a claim for a specific item is made, that claim must be strictly proved, else there would be no difference between a specific claim and a general one. In the present case, the appellant company claimed loss of business profits in the sum of I

A Shs 1,660,000/= it would have realised from the cement business. All that was said in evidence by the Director of that company apparently in proof of this claim was as follows:

`I had taken Shs 2 million as loan from the bank. The bank took interest of 31% per month. The overdraft facility was to end on 20/6/91. I tender (Exist P2). I had bank money to buy the B iron bars. I dealt with cement. One wagon gave me Shs 280,000/= (for 800 bags) I could take one wagon per month. That was since January 1991.'

C This was all the evidence led on behalf of the appellant company on its cement operations. No documents were produced to back up these figures which therefore appear to have been plucked from the air. For instance apart from the appellant's word, there was no evidence that it deals in cement. What was the D purchase price of one bag of cement, from which point, what was the transportation cost of one bag and at what price was it finally sold? The appellant's witness said that one wagon could be taken a month. Nothing definite here. This is not the kind of information on which any court could award loss of business profits.

E We were however surprised by the trial judge's last paragraph to the following effect:

`After a careful consideration, I am of the view that the plaintiff has not succeeded to prove loss of profit. I think he can claim whatever he is entitled to, in his bill of costs, if he mind to present it.' (Emphasis supplied.)

F A bill of costs is nothing more than tabulated costs incurred by a party in the conduct of a case and which he seeks to be reimbursed by the other party. It is never `a claim of whatever one thinks one is entitled to'. A claim of whatever one thinks one is entitled to is made in the body of the suit. We only hope that the bill of costs which was presented by the appellant was not in any way affected by this G misleading direction.

With this remark we order that this appeal which is without merit be dismissed. As the respondent did not appear we make no order for costs. H

1994 TLR p195

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[zRPz]MOSSES MICHAEL ALIAS TALL v REPUBLIC 1994 TLR 195 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Kisanga JJA, Omar JJA and Mnzavas JJA

CRIMINAL APPEAL NO. 35 OF 1994 B

17 August, 1994

(From the conviction of the High Court of Tanzania at Mwanza, Chipeta, J) C

Flynote

Criminal Law - Murder - Malice aforethought - Whether malice aforethought may be inferred from the amount of force used - Whether conduct may be indicative of malice.

-Headnote

This was an appeal on conviction for murder by the High Court. The appellant had D killed a woman he was cohabiting with and he argued that he ought not have been convicted of murder because malice aforethought was not established.

Held:

(i) Malice aforethought may be inferred from the amount of force which an E offender employs in inflicting fatal injury;

(ii) The conduct of the accused may be indicative of malice aforethought as it was in this case where the appellant was persistent in beating the deceased for a long time and prevented intervention by persons who wanted to help the deceased. F

Case Information

Appeal dismissed.

No case referred.

Butambala, for the appellant.

Lyimo, for the respondent. G

[zJDz]Judgment

Kisanga, JA, delivered the following considered judgment of the court:

The appellant was charged with and convicted of murder contrary to s 196 of the Penal Code, and was sentenced to death by the High Court (Chipeta, J) sitting at H Mwanza. He has now appealed against both conviction and sentence.

The background to the case may be set out briefly as follows: At the material time, the appellant and the deceased were living together as husband and wife. According to the appellant the union had lasted for a fortnight only. On the material night, the couple I

1994 TLR p196

KISANGA JA

A had retired after a drinking session with friends; this was around 9 pm.

It would appear that during their short cohabitation the appellant disliked certain aspects of the deceased's behaviour and had asked her to go away but she refused. After the drinking session that night then the appellant set upon her and B assaulted her, using bare hands, for a long time. She cried out and neighbours responded but the appellant chased them away. The deceased died on the same day following the attack. Her death was due to excessive internal bleeding resulting from a ruptured spleen.

C The appellant vehemently denied assaulting the deceased. He claimed that the deceased poisoned herself to death by drinking thiodan. The trial court rejected such defence and, as already stated, convicted the appellant as charged.

In this appeal the appellant was represented by Mr Butambala, learned advocate while Mr Lyimo, Principal State Attorney, was for the respondent Republic. D

In his memorandum of appeal, counsel for the appellant filed only one ground of appeal which alleged that malice aforethought was not established. The learned counsel elaborated on that ground at considerable length during his oral submission before us. E

However, we could find no merit in the contention. The medical opinion which the court accepted was that great force must have been used to cause the ruptured spleen which led to the death of the deceased. The law is settled that malice aforethought may be inferred from the amount of force which the offender F employed in inflicting the fatal injury. In the instant case great force was used. That was a circumstance from which malice could properly be inferred.

The evidence of PW1 and PW2 which the court believed was to the effect that the appellant continued beating the deceased for a long period lasting between 9 pm G and 1 am. The deceased was crying out but when PW1 went to plead with the appellant to stop the beating the appellant chased him away, and when more neighbours came there the appellant also chased them away. In our view such H conduct was indicative of malice. To subject the deceased to persistent beating over a long period when she continued to cry in pain, and to prevent any intervention by persons who had come to the rescue of the suffering victim were acts which were intended to end the life of the deceased or at least to cause her grievous harm.

The appellant did not feel sorry at all for what he had done. At some stage after rendering the deceased helpless through the beat- I

1994 TLR p197

ing, he went to call the neighbour (PW1) and asked him to come and watch `free A cinema'. Upon PW1 arriving there the appellant showed to him the deceased who was lying on the bed

helpless and virtually naked; she only had an underskirt on and no underpants. The appellant then rolled bhang in a piece of paper `using B the skin of the deceased as a pad and rolled the bhang from the vagina area up to her navel'. The appellant showed complete disregard for human life and dignity. He turned human suffering, a situation which he himself had created, into a scene of entertainment. Had he not intended to kill or cause grievous harm to the deceased, he would have felt sorry and would have enlisted the assistance of the neighbours who called on him to take the deceased to hospital or dispensary. Instead he C turned the neighbours away as if to say that the helpless victim should be left alone to die, which is exactly what happened. Such conduct was clearly consistent with malice aforethought. D

Mr Lyimo, the learned Principal State Attorney appearing for the Republic, opposed the appeal and for the reasons as set out above we agree that the appeal is without substance. It is accordingly dismissed in its entirety. E

1994 TLR p197

F

[zRPz]HEMED S TAMIM v RENATA MASHAYO 1994 TLR 197 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Omar JJA, Mnzavas JJA and Mfalila JJA G

CIVIL APPEAL NO. 44 OF 1993

30 September, 1994

(Appeal from the Judgment of the High Court of Tanzania at Dar es Salaam, Bahati, J) H

Flynote

Family Law - Presumption of marriage - Presumption rebutted after eight years of cohabitation - Whether parties have any rights under the Law of Marriage Act 1971 I

1994 TLR p198

-Headnote

A The appellant's third appeal follows from dissatisfaction with the decisions of the Primary, District and High Courts in which he had sought divorce and division of matrimonial assets in the form of a dwelling house which had been acquired in the course of cohabiting with the respondent for a period of eight years. In the Primary Court the respondent's claim was established and reliefs granted namely B dissolution of the marriage and equal division of the dwelling house. But the presumption of marriage was found to have been rebutted by the District and High Courts. On further appeal to the Court of Appeal:

Held:

C (i) Where the parties have lived together as husband and wife in the course of which they acquire a house, despite the rebuttal of the presumption of marriage as provided for under s 160(1) of the Law of Marriage Act 1971, the courts have the power under s 160(2) of the Act to make consequential orders as in the dissolution of marriage or separation and division of matrimonial property acquired by the parties during their relationship is one such order;

D (ii) Having found that the parties were not duly married, the decision of the lower court regarding the dissolution of marriage is void.

Case Information

Appeal dismissed.

No cases referred to.

[zJDz]Judgment

E Mfalila, JA, delivered the following considered judgment of the Court:

This is a third appeal from the decision of the Primary Court of Ilabo district at F Bwquauni. In that court, the present respondent Renato Mashayo sued the appellant for divorce and division of assets in the form of a dwelling house acquired while they were cohabiting. The Primary Court found the respondent's claim established and granted the reliefs sought namely dissolution of marriage and equal division of the dwelling house. The appellant successfully appealed to G the district court which held that as the appellant had rebutted the presumption that they were duly married, there was no marriage to dissolve and that therefore the question of dividing matrimonial assets acquired during marriage did not arise. The respondent was therefore as it were condemned to get out of the eight year H relationship with the appellant empty handed. She fought back and successfully appealed to the High Court where Bahati,J held that although the presumption under s 160(1) of the Law of Marriage Act had been rebutted, the respondent still had some residual rights to property under s 160(2) of the Act which empowers the court, upon rebuttal under ss (1) of the same and upon the woman satisfying the court (as she did in this case) that she I

and the man did in fact live together as husband and wife for two years or more, A

`to make order or orders for maintenance and upon application made therefore either by the woman or the man, grant such reliefs including custody of children as it has jurisdiction under this Act to make or grant upon or subsequent to the making of an order for the dissolution of a marriage or an order of separation as the court may think fit, and the provisions of this Act B which regulate and apply to proceedings for and orders of maintenance and other reliefs under this section.' C

The learned judge then allowed the appeal, set aside the judgment and orders of the district court and restored those of the Primary Court. The appellant Hemed S Tamin applied for leave to appeal to this court arguing that there was an important point of law involved which cried for determination by this court. The Judge (Kyando, J) who heard this application and granted it, certified the following point of law for determination by this court: D

`Whether the respondent was entitled in law to a share of assets in the circumstances of this case.' E

We think the law on this point is quite clear under s 160(2) of the Law of Marriage Act 1971 on which Bahati, J based his decision. It was held by all the courts that on the evidence, the appellant and the respondent had lived as husband and wife for eight years in the course of which they acquired the house at Kiwalani. Both the F District court and the High Court found

that the presumption under s 160(1) had been rebutted but the High Court held correctly that following this rebuttal the court had the power and jurisdiction to make the same consequential orders as in the dissolution of marriage or separation. The order for division of matrimonial assets G is one such order, consequently the learned judge ordered equal division of the house at Kiwalani which was acquired by the parties during or in the course of their relationship. However, having found that the parties were not duly married, the learned judge should not have ordered the restoration of the Primary Court order H regarding the dissolution of marriage, for quite obviously there was no marriage to dissolve. Consequently the order of dissolution of marriage upheld by the High Court is set aside.

Apart from this variation in the High Court judgment, the appeal is otherwise dismissed with costs. I

1994 TLR p200

A

[zRPz]AHMADI ALLY MAUNDU v REPUBLIC 1994 TLR 200 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Kisanga AgCJ, Omar JJA and Lubuva JJA

B CRIMINAL APPEAL NO. 129 OF 1994

7 October, 1994

(From the conviction of the High Court of Tanzania at Mtwara, Mkwawa, J)

Flynote

C Criminal Law - Provocation - Whether a demand for `talaka' rather than reconciliation amounts to provocation.

-Headnote

D This was an appeal from a conviction for murder by the High Court. The appellant sought to rely on provocation as defence because his wife preferred ending their matrimonial differences by demanding `talaka' rather than proposed reconciliation.

Held:

(i) The demand for `talaka' by the deceased did not constitute any unlawful conduct which would form a basis for legal provocation. E

Case Information

Appeal dismissed.

No case referred.

[zJDz]Judgment

F Kisanga, Ag CJ, delivered the following considered judgment of the Court:

This appeal is completely devoid of merit; it ought to have been rejected summarily. It arises out of a conviction for murder and the sentence of death passed on the appellant by the High Court (Mkwawa, J) sitting at Mtwara. G

It was alleged, and admitted by the appellant, that the appellant killed his wife by stabbing her with a knife. In his defence at the trial the appellant sought to rely on provocation as a defence, but the court rejected it. The appellant stated that on the H material day he and his wife had set out to go to his grandfather who lived in a different village in order to refer their family or matrimonial misunderstandings to him for reconciliation. Apparently at the time of setting out, the wife did not know the purpose of the mission, and so on the way she asked the appellant what the intended visit was for. Upon the appellant disclosing the purpose of the visit, she preferred ending their matrimonial differences by demanding `talaka' ie I

divorce from the appellant rather than by the proposed reconciliation. The appellant A claimed that such reaction by his wife angered him so much that he stabbed her four times using a knife, killing her instantly.

Like the trial court, we have no difficulty at all in rejecting the appellant's plea of provocation. The demand of `talaka' by the deceased did not constitute any B unlawful conduct on her part which would form the basis for legal provocation. The appellant's conviction, therefore, was amply justified. His appeal is hopelessly devoid of merit and, as stated at the very beginning, it was fit case for summary rejection. The appeal is accordingly dismissed in its entirety. C

1994 TLR p201

E

[zRPz]LUCAS NGALYOGELA v REPUBLIC 1994 TLR 201 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga Ag CJ, Omar JJA and Lubuva JJA

CRIMINAL APPEAL NO. 21 OF 1994 F
7 October, 1994
(from the decision of the High Court of Tanzania at Morogoro, Kyando, J)
Flynote
Criminal Law - Provocation - Sudden and grave reaction - Manslaughter and not murder. G
-Headnote
This is an appeal against conviction for murder by a husband who killed his wife by hitting her with a stick after she had let out a cascade of abusive words which infuriated him. H
Held:

(i) Taking into account that the evidence of the appellant invoking the defence of provocation was not controverted by the prosecution, the appellant may have attacked the deceased under provocation which was sudden and grave.

Case Information
Appeal allowed. I

1994 TLR p202

A No case referred.

Msellem, for the appellant.

[zJDz]Judgment

Omar, JA, delivered the following considered judgment of the Court:

B The appellant Lucas Ngalyogela was charged with and convicted of murder contrary to s 196 of the Penal Code. He is now appealing. His ground of appeal is that there was provocation and if considered would have reduced the offence of murder to one of manslaughter. The appellant does not dispute that on the evening of 16 September 1989 while inside their house with his wife Consolata he attacked C his wife by hitting her not with axe pestle but with an ordinary stick and not in the living room as was said by PW1, their 20 year old son, but in the bedroom.

D PW1 in his evidence stated that on the material night he was present in the house with his parents and other children and he heard his father tell his mother that she had sent her children to arrest him for being a thief and she was also telling neighbours that the appellant was a petty thief ie `Mdokozi'. His mother did not reply to these allegations. PW1 left the house and went to sleep in another E house with his two young brothers. But before his departure PW1 also heard his father the appellant, telling the deceased to prepare more food for him; this was after the family had eaten their dinner together. What transpired after that between his parents he, PW1, did not know. But shortly afterwards he heard the cries of `mama mama' from the three youngest children he left behind with their parents. F And he rushed there only to find his mother lying on the bed with axe pestle near her and bleeding from the head. The appellant was nowhere to be seen, he having fled from the house. PW1 took the deceased to the cell leader and from there to the Police Station and thence to the dispensary for treatment. The case of assault G causing actual bodily harm was opened against the appellant who was found in the bush and arrested the same evening. The appellant was sentenced to six months imprisonment. Ten days after this incident the deceased whose wounds had not healed but became septic, died in hospital where she was rushed the H same day her condition deteriorated. It was then that the appellant who was in prison serving his sentence, was charged for the offence of murder and when the charge was read to him he agreed that he attacked his wife but he did not expect her to die.

Considering the evidence as a whole there is the statement of the I

deceased which she made when she was still able to walk and speak and she A said that as she bent down to pick the flour in order to prepare for the extra meal for her husband she was hit on the head and she became unconscious. PW1's contribution to the evidence mentioned the outburst of the appellant to his wife about her attitude of considering her husband a petty thief and setting her children against him. Then there is the evidence of the appellant who described the abusive B words of the deceased to him when he asked where she had been from 5 pm when she had finished her work of selling liquor at a bar to 7 pm when she returned home. In her explanation about this absence of two hours she said she C was collecting utensils used for selling liquor and then her husband replied that this work could have been done by her young sister who was there at the bar helping her. It was at this juncture that according to the

appellant, his wife let out a cascade of abusive words which infuriated him so much that he picked a stick and hit her on the head. They were alone in the house but for the three very young D children. The outburst is as follows: `You are telling me to let my young sister to collect utensils, why? You old-man you have no brains. Your brains are like those of your mother. And the mother that gave birth to you I do not know in what form you were then.' E
On the available evidence we cannot say for certain that these words were not uttered. They may well have been uttered and led to the attack on the deceased. After all, the time this couple lived together was long, 22 years, and peaceful with a gift of eight children which they were blessed with. This has reinforced our belief F that this was probably an isolated and unfortunate incident in their lives and has led to such a tragedy. The evidence of the appellant on this provocation was not controverted by the prosecution. PW1, their son, was not around to have witnessed events that preceded the attack. G
In the result we agree with the submission of Mr Msellem the learned defence counsel that the appellant may have attacked the deceased under provocation which was sudden and grave. We therefore quash conviction for murder and set aside the sentence of death. We find the appellant guilty of the lesser offence of manslaughter and sentence him to a term of eight years imprisonment from 4 February 1993 the day he was convicted in the High Court. H
1994 TLR p204
A
[zRPz]SAIDI ABDALLAH v REPUBLIC 1994 TLR 204 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga AgCJ, Omar JJA and Lubuva JJA

CRIMINAL APPEAL NO. 130 OF 1994 B
7 October, 1994
(From the conviction and sentence of the High Court of Tanzania at Mtwara, Mkwawa, J)
Flynote
C Criminal Law - Murder - Defence of Provocation - Whether talking in riddles is provocative enough
-Headnote
This was an appeal against conviction for murder by the High Court. The accused argued that he should have been convicted of manslaughter as he killed because he suspected that the deceased and his colleagues had hatched a plan to kill him. D
Held:

(i) The defence of provocation is not available in this case where the appellant was clearly vengeful from the way he persuaded his victim to follow him to the forest where he killed him; E

(ii) People talking in riddles is not provocative enough to lead the appellant to choose one unsuspecting person and lure him to his death.

Case Information
Appeal dismissed.
F No case referred.
Mkongwa, for the appellant.
Matupa, for the respondent.
[zJDz]Judgment
G Omar, JA, delivered the following considered judgment of the Court:
The appellant Saidi Abdallah was charged with the murder of his fellow worker Saidi Hassan Mnanila and was convicted. He is now appealing.
H The prosecution led evidence to the effect that on 16 April 1991 at Pungutini Village in Kilwa District the appellant and the deceased took their meal together in the house of PW1 where they were employed as shamba boys. PW2, the brother of PW1, was present too during meal time. Both PW1 and PW2 heard the appellant entreating the deceased to go with him to the shamba to collect building poles. At first deceased refused but the appellant insisted, I

so the deceased turned to PW1 and PW1 permitted the deceased to go. The two A then departed for the countryside; the appellant borrowed a bill-hook from PW1 and took it along. Shortly afterwards a loud sound was heard by PW1 and PW3 and the cries from the deceased screaming that Saidi was killing him.
PW4 Sikujua d/o Pengere who was passing by at the time, saw the appellant B running very fast to the bush and wielding a bill-hook, and a distance ahead she saw the deceased lying on the ground. He was already dead.
In the cautioned statement before ASP Matho in the CID Office at Kilwa, Masoko the appellant confessed to killing the deceased by cutting his neck on the right side C with a bill-hook. But he did so because he suspected that the deceased and his colleagues had hatched a plan to kill him.
In his defence the appellant agreed that he and deceased went out together that fateful day but on the way the deceased tried to throw him to the ground but he D (the appellant) managed to escape from him and ran away. He was not carrying a bill-hook and PW4 who said she saw him running armed with a bill-hook was lying. The appellant then said that he did not know who killed the deceased.
Mr Mkongwa, the learned counsel for the appellant, submitted that the learned trial E judge erred in law and in fact by finding the appellant guilty of murder instead of manslaughter. He added that the appellant was acting in self-defence following what he perceived was a serious threat to his life, he (the appellant) did not deny attacking the deceased. F
Mr Matupa, the learned State Attorney, on the other hand supported the conviction of murder and he added that it was well founded because it is clear that he was vengeful from the way he persuaded his victim to follow him to the forest ostensibly to help him (the appellant) cut building poles but actually to afford him (the appellant) the opportunity to kill, which he did at the first available opportunity. G

We agree with the counsel for the Republic that the defence of provocation is not available to him. If the appellant perceived any threat to his life he should have quietly disappeared from his place of work instead of doing what he did. If people H were talking in riddles which made him understand that they were saying that they had him in their grip then that conception is not provocation enough to lead him to choose one unsuspecting person and lure him to his death. We find on this account that the appeal is devoid of merit and so dismiss it in its entirety. I

1994 TLR p206

A

[zRPz]SIJALI JUMA KOCHO v REPUBLIC 1994 TLR 206 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Kisanga Ag CJ, Omar JJA and Lubuva JJA

CRIMINAL APPEAL NO. 22 OF 1994 B

7 October, 1994

(From the decision of the High Court of Tanzania at Morogoro, Bahati, J)

Flynote

C Criminal Law - Defence of alibi - Whether prior notice is required.

Criminal Practice and Procedure - Identification of accused - Identification where offence was committed at night.

-Headnote

D The appellant appealed against the conviction for murder by the High Court on the ground that the conviction was largely based on the uncorroborated dying declaration of the deceased. The appellant further contended that the conditions obtaining at the time of the incident did not favour correct identification of the appellant as being one of the bandits who invaded the house of the deceased in the night. E

Held:

(i) The conditions in the house did favour correct identification of the appellant as the tube light under which a person could read was sufficiently bright to enable the deceased to identify the appellant who was well known to him before the incident; F

(ii) Prior notice of the defence of alibi is required under the law;

(iii) The appellant was under no legal obligation to prove the alibi but in the fact of the allegations made against him one would reasonably expect him to call the person he claims he was with at the time of the event.

Case Information

G Appeal dismissed.

No case referred.

Mselem, for the appellant.

Korosso, State Attorney for the respondent.

[zJDz]Judgment

H Kisanga, Ag CJ, delivered the following considered judgment of the Court:
The appellant was convicted of murder contrary to s 196 of the Penal Code and sentenced to death by the High Court (Bahati, J) sitting at Morogoro. He has now appealed against both conviction and sentence. I
1994 TLR p207
KISANGA Ag CJ
The facts of the case were that a group of ten bandits broke into a shop at about 1 A am and seriously attacked the deceased and PW3 who were sleeping there after which they made away with money and shop goods. The two victims were taken to hospital where the deceased died about a week later. PW3 survived to tell the story of what happened. B
The conviction is based largely if not wholly, on a dying declaration of the deceased, consisting of what he is reported by PW3 to have said at the time of the invasion that night, and by PW1 while he (the deceased) was at the hospital. PW3, the owner of the shop which was broken into, testified that after the bandits had entered they demanded money. He obliged and gave them Shs 67,000/= which C was in two lots. However, they were not satisfied and so they started to attack him and the deceased. They were in two groups: One group consisting of five dealt with the deceased while the other group was on PW3. In the course of the attack D the deceased remarked `Even you Kocho my relative of Manzese are killing me?' PW1 who was attending the deceased at the hospital testified that deceased told him that it was his friend Kocho who had injured him. The appellant in his defence denied the charge and put up the alibi that on the material night he was far away at the home of his uncle. E
The trial judge rejected the defence of alibi. He relied on the dying declaration and convicted the appellant. He was satisfied that the dying declaration was sufficiently cogent to warrant the conviction even without its being corroborated. F
At the hearing of this appeal the appellant was represented by Mr Mselem, learned advocate, while the Republic was represented by Miss Korosso, learned State Attorney. Mr Mselem filed and argued only one ground essentially attacking the trial judge for basing the appellant's conviction on the uncorroborated dying declaration of the deceased. He contended that the conditions obtaining at the time of the G incident did not favour correct identification of the appellant as being one of the bandits. Miss Korosso strongly resisted the appeal.
The Trial Judge accepted the evidence that there was a tube light on in the room H where the bandits carried out their nefarious activities that night. The tube light was coloured but was sufficiently bright for a person to read under it. There was abundant evidence that the appellant and the deceased were long time friends. Indeed the appellant conceded that he went to school with the deceased in Morogoro and he visited the home of the I
1994 TLR p208
KISANGA Ag CJ
A deceased in Moshi. The bandits did not start attacking the inmates immediately after entering the room. They demanded money first and PW3 dished out Shs 67,000/= in two lots. It is only after they were dissatisfied with this amount that they started to attack PW3 and the deceased.

B We are of the view that these conditions did favour correct identification of the appellant. The tube light under which a person could read was sufficiently bright to enable the deceased to identify the appellant who was well known to him before the incident.

There was evidence that the bandits flashed torch light in the eyes of the inmates C in order to dazzle them, and Mr Mselem contended that this must have prevented the deceased from identifying his assailant or assailants. We cannot agree. Flashing torch light did not go on all the time. For instance, there was the period between the time the bandits demanded money and the time PW3 handed to them Shs 67,000/=in two lots. The bandits cannot have been flashing torch D lights in the eyes of PW3 all this time. They must have paused for some time to enable him to pick up the money from wherever he had kept it and hand it over to them. During such interval the deceased could have identified the appellant as one of the intruders. There is other evidence which shows that flashing of the torch light did not dazzle the inmates to the extent of making it impossible for them to see and appreciate what was going on. PW3 said that the group of bandits who E entered the room that night numbered ten. If under the conditions obtaining in the room he could see and count the number of invaders, the same conditions should enable the deceased to identify the appellant whom he knew so well before. Of F course, unlike the deceased, PW3 could not identify the bandits because, he said, they were strangers to him; he did not know them prior to the incident.

G Mr Mselem emphasized the view that the conditions were not favourable for correct identification considering that the inmates must have been suddenly awakened from deep sleep at 1 am, the events were taking place in rapid succession and that the inmates were very frightened. Once again we are not H persuaded by this argument. As pointed out earlier, the attack did not start immediately after the bandits had demanded money and were given what they considered was not enough. During such demand for and handing over of money the deceased, with the aid of the tube light, would be able to identify the appellant whom he knew so well as a long time friend. I

1994 TLR p209

KISANGA Ag CJ

As submitted by Miss Korosso, the appellant's conduct points to his guilt of the A offence charged. The appellant and the deceased were long time friends and, indeed according to the appellant, that friendship continued until the death of the deceased. There was ample evidence that after the deceased was injured the appellant enquired, though sarcastically, and got to know that the deceased was B hospitalized but he never went to see him there even though he told lies that he visited him twice at the hospital. It is hard to see how in ordinary circumstances the appellant would have forsaken his long time friend at such a critical time. This point is brought out even more clearly when the appellant told lies that he visited the deceased twice at the hospital for this is what he should indeed have done but he did not. C

There was credible evidence that after the deceased died and during investigation into the case, the police were searching for the appellant but as they approached him he ran away and disappeared, only to be arrested two days later. It is only D reasonable to conclude that he ran away because he knew that the police wanted him in connection with this offence which he had

committed. Not only that. There was evidence also that the appellant was known by the name of Kocho by which the deceased is reported to have identified him on the fateful night. Indeed it is the E name under which the appellant was charged and which appeared throughout the proceedings respecting him right up to this court. Prosecution witnesses consistently referred to him as Kocho and they were not cross-examined. Strangely enough, however, the appellant in the course of his defence disowned F that name. One wonders why. In normal circumstances one does not disown one's name. The only reasonable inference to be drawn is that the appellant did so as an afterthought in an attempt to avoid any association of his identity with the death of the deceased. G

We are satisfied that considering all the circumstances of the case the charge against the appellant was proved sufficiently and that the appellant's denial cannot cast any reasonable doubt on his guilt. In his defence of alibi the appellant had claimed that on the material night he slept at the home of his uncle. He had given H no prior notice of this alibi as required under the law. Admittedly he was under no legal obligation to prove the alibi but in the face of the allegations made against him, one would reasonably expect him to call the said uncle to bear him out. However, the appellant declined to do so despite suggestions to him in cross-examination. In these circumstances, therefore no weight can be attached to his alibi, and the I

A learned Trial Judge rightly discounted it. In the result the conviction was justified and we can find no ground to interfere. Accordingly the appeal is dismissed in its entirety.

C

[zRPz]KULWA KABIZI, PAULO SINDANO BALELE & SULEIMAN MLELA v REPUBLIC 1994 TLR 210 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

D CRIMINAL APPEAL NO. 38 OF 1993
19 October, 1994
(From the decision of the High Court of Tanzania at Tabora, Lugakingira, J) E
Flynote
Criminal Practice and Procedure - Admission and evaluation of evidence - Evidence wrongly rejected by trial court - Duty of the Appellate Court.
-Headnote

F The appellants were charged with conspiracy, fraudulent false accounting, and stealing by public servant before the Shinyanga District Court. They were acquitted on all counts. The Republic appealed to the High Court which, after restoring and re-evaluating numerous pieces of evidence which had been rejected by the trial court, allowed the appeal and convicted the appellants on all counts. They G appealed to the Court of Appeal arguing that the High Court

was wrong to restore some evidence which had been rejected by the trial court and to rely on some evidence which needed corroboration, and further that the High Court exceeded its powers in that it acted in a manner which amounted to recording additional evidence. H

Held:

(i) The High Court was right to evaluate the evidence on record and to act on some crucial evidence which the trial court had wrongly and deliberately disbelieved;

(ii) Where a trial court wrongly rejects certain evidence it is the duty of the appellate court to arrive at its conclusions upon a consideration of the whole of the evidence properly admissible and available on record; I

1994 TLR p211

(iii) The High Court in this case rightly arrived at its own conclusion after A restoring evidence in support of the prosecution which had been wrongly rejected by the trial court.

Case Information

Appeal dismissed.

Cases referred to: B

(1) Williamson Diamonds Ltd and Another v Brown [1970] EA 1.

(2) Trevor Price and Another v Raymond Kelsall, [1957] EA 752.

(3) R v Hamis bin Said and Another [1942] 9 EACA 50.

Maira, for the first appellant.

Mtaki, for the second appellant. C

Matata, for the third appellant.

Kaduri, for the respondent.

[zJDz]Judgment

Mnzavas, JA, delivered the following considered judgment of the Court. D

The appellants, Kulwa Kabizi, Paulo Sindano Balele and Suleiman Mlela to whom we will hereinafter be referring to as first, second and third appellants respectively, were charged before the District Court of Shinyanga of three counts of conspiracy, three counts of fraudulent false accounting and three counts of stealing by public servant. E

After a full trial the District Court acquitted the appellants on all the counts. Dissatisfied with the decision of the District Court the Republic appealed to the High Court which, after evaluating the evidence tendered in the court of first instance, was satisfied that there was ample evidence in support of the charges F against the appellants. The learned judge accordingly upheld the appeal by the Republic, convicted the appellants on all the counts and sentenced each of the appellants to seven years imprisonment in respect of counts one, four and seven. In counts two, five and eight each appellant was sentenced to seven years imprisonment on each count; and in counts three, six and nine (that is stealing by public servants) each appellant was sentenced to ten years imprisonment on each count. All the sentences were made to run concurrently. Aggrieved by the decision G of the High Court the appellants have appealed to this court.

Before us Mr Maira, learned counsel, advocated for the first appellant. Mr Mtaki, learned counsel appeared for the second appellant and Mr Matata, learned counsel argued the appeal in respect of the third appellant. H

Mr Maira argued that the first appellate court erred in convicting the first appellant on the evidence of PW3, PW5 and PW6 who like I

A the appellants were employees of Shinyanga Region Co-operative Union. It was the learned counsel's submission that these witnesses were accomplices whose evidence needed corroboration before being acted upon to the detriment of the first appellant.

B Mr Maira, learned defence counsel also argued that it was wrong and improper for the learned judge to rely on exhibits P1, P2 and P3 to convict his client, the first appellant; when the evidence showed that some of the documents were tampered with.

It was also Mr Maira's submission that on the evidence tendered in the district C court the most that could be said about his client, first appellant, is that he was negligent in his work. It was argued that there was no evidence implicating the first appellant with the offences charged. Finally Mr Maira complained that his client's conviction was based on the weakness of his defence and not on the strength of the prosecution case and asked this court to allow his appeal. D

Mr Mtaki, learned counsel for the second appellant argued that the High Court exceeded its powers in that it heard the appeal in a manner which amounted to recording additional evidence. Like Mr Maira, Mr Mtaki also complained that the learned judge erred in acting on the evidence of PW3, PW5 and PW6 which E evidence, it was argued, needed corroboration before being relied upon to the detriment of the appellant. Mr Mtaki further argued that the judge readily accommodated prosecution irregularities but that he did not do so in respect of his client, second appellant.

F Mr Matata appearing for the third appellant complained that the learned judge should not have relied on the payment vouchers - exhibit P4 in convicting the third appellant because the said payment voucher was found in third appellant's cupboard at the time he had already been interdicted. It was submitted that the document (P4), could have been `planted' in his office cupboard during his G absence. The learned defence counsel also argued that the learned judge should not have believed the evidence of PW2 and PW12 which was to the effect that exhibit P4 was found in third appellant's cupboard.

H In conclusion Mr Matata submitted that the third appellant's office was merely a clearing house and that as such he could not have committed the offences charged.

In rebuttal Mr Kaduri, learned Senior State Attorney, submitted that the High Court was right in not treating PW1, PW2, PW3, PW5 and PW6 as accomplices whose evidence needed corroboration because they were all employees of the Co-operative Society I

working in different capacities from the appellants - and those witnesses mainly A touched on the daily routine regarding financial transactions in the Co-operative Society.

As for the High Court's decision to rehear the case Mr Kaduri argued that as a first appellate court the High Court was not bound by the facts found by the court of first instance. In support of his argument we were referred to the decision in Williamson Diamonds Ltd and Another v Brown (1). B

It was also submitted that the High Court had power to evaluate evidence tendered in the District Court and draw its own inferences. In support of this submission the decision in Trevor Price and Another v Raymond Kelsall (2) was quoted. C

We have minutely examined the evidence tendered in the court of first instance and the High Court's evaluation of that evidence and we are fully satisfied in our own minds that the learned judge was perfectly right in coming to the conclusion that the Trial Senior Resident Magistrate was from the word go bent to acquit the D appellants. In order to do so he deliberately disbelieved crucial prosecution witnesses - PW3, PW4, PW5 and PW6 on the ground that they were accomplices and that their evidence lacked corroboration. E

The Trial Magistrate even rejected the audit report tendered by the prosecution on the ground that the auditor (PW2), was not a competent auditor. That the Trial Magistrate found PW2 to be incompetent to audit business accounts despite the evidence that he was a holder of Advanced Diploma in Accountancy is, to say the least, beyond our comprehension. F

The learned judge was also right in restoring the evidence of one, Alphonce Dutta, (PW14), whose evidence the court of first instance struck out as inadmissible. This witness used to prepare weekly returns and was called to supplement the G prosecution case taking into account that original copies of returns from accused's societies could not be traced. Apparently the trial magistrate had earlier refused to admit copies of the original returns in total disregard of the provisions of s 67(1)(c) of the Law of Evidence Act 1967 which allows admission of such evidence. This again clearly demonstrates his bias against the prosecution case. H

`Where a Trial Magistrate wrongly rejects certain evidence (as it was in this case) it is the duty of the appellate court in the circumstances of the case, to arrive at its conclusions upon a consideration of the whole of the evidence properly admissible and available on record' - R v Hamis bin Said and Another (3). I

1994 TLR p214

A In this case the learned judge arrived at his conclusion after finding that the trial court wrongly rejected evidence which supported the prosecution case. We see no good reason to differ with the learned judge's finding that on the evidence the appellants were guilty of the nine counts of conspiracy, fraudulent false accounting and stealing by public servant as charged. B

In conclusion we would like to mention, if only in passing, that had this appeal been placed before us for admission or otherwise we would not have had the slightest hesitation in dismissing it summarily under s 4 of the Appellate Jurisdiction Act, 1979 as amended by Act 16 of 1984. C

In the event this appeal fails and it is accordingly dismissed in its entirety.

1994 TLR p214
E
[zRPz]JOSE X FERREIRA v MBARAKA SALUM 1994 TLR 214 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

CIVIL APPEAL NO. 22 OF 1994
F 10 November, 1994
(Appeal from the Judgment and order of the High Court of Tanzania at Dar es Salaam, Kyando, J)
Flynote
G Civil Practice and Procedure - Appeals - Appeals to the Court of Appeal - Appeal made without leave of the High Court where leave is required - Appeal incompetent.
-Headnote
At the hearing of this appeal counsel for the applicant raised a preliminary objection asserting that the appeal was incompetent because no leave to appeal to the Court of Appeal had been granted while counsel for the respondent contended H that the matter was appealable as of right.
Held:
This is a matter which is appealable only with leave of the High Court; as no leave to appeal had been obtained or sought the appeal was incompetent.
Case Information
Objection upheld.
No cases referred to. I
1994 TLR p215
Lamwai, for the applicant. A
Mbuya, for the respondent.
[zJDz]Judgment
Kisanga, JA, delivered the following ruling of the Court:
At the hearing of this appeal Dr Lamwai, learned counsel for the applicant, raised a preliminary objection to the appeal, he having given due notice of that objection in terms of Rule 100 of the Court of Appeal Rules. The objection is based on a B number of grounds.
Firstly, the appeal is incompetent because no leave to appeal to this Court was granted or sought. Elaborating on that ground Dr Lamwai submitted that the C decision of the High Court being appealed against ie the Order dated 25 June 1993 is not appealable as of right. That order is appealable only with leave in terms of s 5(1)(c) of the Appellate Jurisdiction Act, but no such leave has been granted or sought.
In reply thereto Mr Mbuya, learned counsel for the respondent, contended that the D said order fell within the ambit of s 5(1)(b)(viii) of the Appellate Jurisdiction Act and therefore it was appealable as of right. The relevant provisions of s 5 of the Appellate Jurisdiction Act say that:

`5(1) In civil proceedings, except where any other written law for the time being in force E provides otherwise, an appeal shall lie to the Court of Appeal -

(b) against the following orders of the High Court made under its original jurisdiction, that is to say - F

(viii), an order under any of the provisions of the Civil Procedure Code, 1966 imposing a fine or directing the arrest or detention, in the civil prison, of any person except where the arrest or detention is in execution of a decree;'

The record shows that on 23 June 1993 counsel for the applicant applied under G Order 36 rules 1(b)(3)(1) and 5 of the Civil Procedure Code for the following orders:

`(1) That the respondent should show cause why he should not furnish security in the sum of Shs 10m/= for the due performance of the decree that may be passed against him. H

(2) If he fails to show cause he should be required to deposit Shs 10m/= into court.

(3) Upon his failure to deposit, he be committed to civil prison.'

After hearing arguments for both sides the learned judge on 25 June 1993 made the following order: I

1994 TLR p216

KISANGA JA

A `ORDER

After examining the papers in relation to this case, especially the affidavits in the application, and after hearing counsel for both sides, I am satisfied that this is a fit case for ordering security for appearance under Order 32 r 1(b) and s 5 of the Civil Procedure Code. This is the case especially because the respondent/2nd defendant was in the process, when he was B arrested under a warrant of arrest issued by this court, of leaving the country for India. Also, he (the respondent) is a non-citizen. It cannot be said at all under those circumstances, that the applicant's apprehensions that he (respondent) may be leaving permanently are altogether unfounded. Accordingly, I grant the application and make the following orders: C

I The respondent is to furnish security for his appearance by executing a bond of Shs 5,000,000/= with two sureties with each in the likesome. The sureties should be holders of Tanzania passports and should be having immovable property in this country and they are to deposit the title deeds of properties in court. D

II If he fails to execute the bond he should deposit Shs 7,000,000/= in court as a security.

III Failing the above ie (I) & (II), he is not to leave the jurisdiction of this court and for this purpose the passport which the Registrar ordered to be surrendered to the Police is to remain in Police hands. E

IVApplicant awarded the costs of this application.'

We can find nothing either in the application dated 23 June 1993 or in the corresponding order of 25 June 1993 to show or suggest that the court imposed a fine on or directed the arrest or detention, in the civil prison, of the respondent. The F case, therefore did not come within the ambit of s 5(1)(b)(viii) as asserted by Mr Mbuya. As Dr Lamwai rightly submitted this was a

matter which fell under s 5(1)(c) of that Act in which leave to appeal was required. As no leave has been obtained or sought the appeal is clearly incompetent and must be struck out. G
That then was sufficient to dispose of this matter, but Dr Lamwai further charged that the appeal was incompetent for lack of the extracted order in appeal and that it was also time barred. Upon our examination of the record, and having heard counsel arguments for both sides, we are satisfied that objection on those H grounds was also well taken.
In the event, Dr Lamwai's preliminary objection succeeds, and accordingly the appeal is struck out with costs. I
1994 TLR p217
A
[zRPz]DAVID KAMUGISHA MULIBO v BUKOP LTD - BUKOBA 1994 TLR 217 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Omar JJA, Mnzavas JJA and Mfalila JJA

CIVIL APPEAL NO. 14 OF 1994 B
(From the ruling of the High Court of Tanzania at Mwanza, Masanche, J) C
Flynote
Civil Practice and Procedure - Change of judge before concluding the trial - Whether proper - Order 17 Rule 10 of the Civil Procedure Code 1966.
Labour Law - Summary dismissal of employee - Meaning of `employee' in cases of summary dismissal - Sections 4 and 28(1) of the Security of Employment Act 1964 as D amended by Act No 45 of 1969.
Labour Law - Meaning of `employee' under the Security of Employment Act 1964 - Whether the opinion of the Labour Officer is binding on the court. E
-Headnote
The appellant sued the respondent for wrongful termination of employment. At the commencement of the trial the respondent had raised a preliminary objection to the effect that the trial court had no jurisdiction because the appellant had been summarily dismissed. The trial judge ordered the trial to be stayed so that the F opinion of the labour officer could be obtained regarding whether or not the appellant was employed in the management of the business of the employer, and therefore not an `employee' under the Security of Employment Act 1964. That opinion was obtained and given to the court. The matter was then called before another judge who proceeded to strike out the case `as incompetent in law'. G
On appeal:
Held:
(i) It was highly irregular and unprocedural for the matter, which was initially before a judge who had stayed his ruling pending the opinion of the labour officer, to be heard and determined by another judge; H

(ii) The opinion of the labour officer that the appellant was not a member of the respondent's management team was no more than a mere opinion which the court was not bound to follow;

(iii) As there was a triable issue before the court, ie whether or not the appellant was wrongly terminated by the respondent, the suit was in no way incompetent. I

1994 TLR p218

Case Information

A Case remitted to the High Court to proceed by the Judge before whom it was initially heard.

No case referred to.

B Nasimire, for the appellant.

Katabalwa, for the respondent.

[zJDz]Judgment

Mnzavas, JA, delivered the following considered judgment of the Court: C

The appellant, David Kamugisha Mulibo, filed a suit in the High Court against his former employer, Bukop Ltd - Bukoba, claiming damages for wrongful termination of his appointment.

D When the case came up for hearing on 14 August 1990 Mr Katabalwa, learned defence Counsel for the respondent/defendant, raised a preliminary objection to the effect that the Court had no jurisdiction to hear the case as, it was argued, the appellant was summarily dismissed. He quoted the provisions of s 28(1) of the Security of Employment Act 1964 and case law in support of his submission. E

In rebuttal the appellant/plaintiff argued that the suit was for claim of damages and that he was not questioning his dismissal. In his ruling the High Court (Sekule, J) said inter alia: F

`... This is therefore a case of summary dismissal and the jurisdiction of this Court is ousted by Section 28(1) of the Security of Employment Act 1964. The matter however does not end here because for the jurisdiction of this Court to be ousted, the second requirement must be met. That is, the plaintiff must show to have been an employee within the meaning of Section 28(1) of the said Security of Employment Act, 1964. G

According to Section 2 of the Security of Employment (Amendment) Act 1969, employees who are employed in the management of their employer's business are exempted from the provisions of the Act and are not therefore employees within the meaning of Section 28 of the H Security of Employment Act, 1964. The issue therefore is, was the plaintiff in this case employed in the management of the business of his employee'.

Act No 45 of 1969 - The Security of Employment (Amendment) Act 1969 amends s 4 of the principal Act regarding the definition of I

1994 TLR p219

MNZAVAS JA

`employee' by adding para (e) which says that an employee also means `any A employee who, in the opinion of the labour officer is employed in the management of the business of his employer'.

In deciding on the question whether or not the appellant/plaintiff was employed in the management of the business of his employer of the High Court (Sekule, J) said inter alia: B

`... I am inclined to the view that this is a fit case for the labour officer to give his opinion in terms of section 4(e) as amended by the Security of Employment (Amendment) Act, 1969 as to whether or not in his opinion the plaintiff was employed in the management of the business of C his employer. In this regard, I would adopt the approach of this Court in the case of Walter Jager v Cordura Ltd t/a Tanganyika Tourist Hotels and Oyster-Bay Hotels (1972) HCD 133: and stay the suit, and leave it open to either party to this suit to obtain the opinion of the labour officer under Section 4(e) of the Security of Employment Act as amended by the Security of D Employment (Amendment) Act No 45/1969 i.e. whether or not the plaintiff was employed in the management business of his employer. It was so ordered'.

This was on 7 March 1991. On 15 January 1993 the District Magistrate minute to Sekule, J was to this effect: E

`This suit was stayed, pending opinion of the Labour Officer. The same has now been obtained and the case is referred back to your Lordship for your action/advice'. F

Sekule, J in reply to the minute said:

`Let the parties be informed of the Labour Officer's opinion, And the case should be fixed for hearing or mention so that the effect of the opinion could be formally dealt with in the presence of the parties'. G

On 24 February 1993 the case came before Masanche, J. On that day the appellant/plaintiff was present but the defendant was not. The record does not show whether or not he had been served with notice of hearing. The appellant/plaintiff is recorded to have told the Court: `I am suing Bukop for dismissing me without following procedure'. H

The Court (Masanche, J) retorted -

`But the record shows that it has been resolved that you were not a member of management team. Again, in terms of s 28(1) of the I

A Security of Employment Act, 1964 Cap 574 this Court would have no jurisdiction to entertain the case'.

The appellant/plaintiff replied:

B `My Lord I think you can take my case. I think there is an authority of the Court of Appeal that says that such cases can be entertained. It is the case of Kaijago'.

The Court fixed the 1 September 1993 as the day the ruling would be delivered. It was indeed delivered on that day and the High Court (Masanche, J) found that the C Court had no jurisdiction to entertain the case and `struck it out as incompetent in law'. Aggrieved by the ruling the appellant has come to this Court.

Before us Mr Nasimire and Mr Katabalwa, learned Counsel appeared for the appellant and the respondent respectively.

D Mr Nasimire, Learned Counsel, argued, after direction from the bench, that the High Court should have called the labour officer as a court witness to elaborate on his report that the appellant was not employed in the management of his employer's business before acting on the report to the detriment of his client, the appellant. It was also Mr Nasimire's submission that as

Sekule, J had stayed the E proceedings pending an opinion from the labour officer the matter should have been dealt with by the same judge after the opinion of the labour officer was received. The fact that the case was placed before Masanche, J was said to be F irregular and we were ordered that the case be continued to completion before Sekule, J.

In rebuttal Mr Katabalwa, learned Counsel for the respondent, was apparently of the same view - adding that the whole matter was in confusion as Sekule, J did not finish his ruling. With respect to the learned Counsel we agree that it was highly irregular and unprocedural for the matter (which was initially before Sekule, G J who had stayed his ruling pending an opinion from the labour officer) to be heard and determined by another judge.

The record is totally silent as to why Sekule, J did not conclude the trial after the opinion of the labour officer was received. H

Order 17 Rule 10 of the Civil Procedure Code 1966 says:

> `Where a Judge or magistrate is prevented by death, transfer or another cause from concluding the trial of suit, his successor may deal with any evidence or memorandum taken down or made by the foregoing rules as if such evidence or memorandum had been taken down or made by him or under his direction under the said rules and I

> may proceed with the suit from the stage of which his predecessor left it'. A

As none of the impediments mentioned above were present to prevent Mr Justice Sekule from concluding the trial of the suit, the trial of the suit by Mr Justice Masanche went counter to the clear provisions of Order 17 Rule 10 of the Civil B Procedure Code - above mentioned. It is also not irrelevant to mention, if only in passing, the remark by Masanche, J to the plaintiff - `But the record shows that it has been resolved that you were not a member of the management team' - (emphasis supplied). If the learned judge meant that the opinion of the labour C officer had resolved the issue that the plaintiff was not a member of the management team (and we think that is what he meant), it is our view that the labour officer's opinion was mere opinion. It was not evidence, and the Court was not bound to follow it. D

Another observation is that in his concluding remarks Masanche, J said - `I order that his case be struck out as incompetent in law'. With respect, the suit was in no way incompetent. There was a triable issue i.e. whether or not the appellant/plaintiff was wrongfully terminated by the respondent/defendant from his employment, and the Court proceeded and tried the suit. E

In view of the glaring irregularity mentioned above we have no alternative but to quash the decision by Masanche, J; and the order thereto is hereby set aside.

The case is remitted to the High Court and hearing should continue before Sekule, J from where it was stayed and the opinion of the labour officer be put to the parties. F

A

[zRPz]MOSES MUNGASIANI LAIZER ALIAS CHICHI v REPUBLIC 1994 TLR 222 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

B CRIMINAL APPEAL NO. 99 OF 1994
28 November, 1994
C (From the conviction of the High Court of Tanzania at Arusha, Mushi, J)
Flynote
Criminal law - Murder - Self-defence - Whether plea of self-defence is available to a person who started the fight.
D Criminal Law - Homicide - Death occurring as a result of a fight - Whether it is murder or manslaughter.
-Headnote
This was an appeal against conviction for murder. The appellant argued that he shoould havve been convicted of the lesser offence of manslaughter instead of murder as the death of the deceased was the result of a fight.
E Held:
(i) The defence of self-defence is available also to a person who has started a fight depending on the circumstances of the case;
(ii) Where death occurs as a result of a fight an accused person should be found guilty of the lesser offence of manslaughter and not murder.
Case Information
F Appeal allowed.
Cases referred to:
(1) R v John Wimaana [1968] HCD 49.
(2) R v Ramzan Ahmed Jamal [1955] 22 EACA 504.
G Mwale, for appellant.
Mwaimu, for the respondent.
[zJDz]Judgment
Mnzavas, JA, delivered the following considered judgment of the Court:
H The appellant, Moses Mungasiani Laizer alias Chichi, was charged with and convicted of murder contrary to s 196 of the Penal Code and sentenced to death. Dissatisfied with the decision of the High Court he has come to this Court.
Mr Mwale, learned advocate, appeared for the appellant while Mr Mwaimu, learned State Attorney, advocated for the Republic.
Mr Mwale essentially argued that on the evidence before the High I

Court the learned Trial Judge should have convicted the appellant not of murder A but of a lesser offence of manslaughter contrary to s 195 of the Penal Code as, it was submitted, there was a fight between the deceased and the appellant before the latter fatally attacked the former. The learned State Attorney on the other hand supported the conviction for murder arguing that

the appellant had ambushed the deceased, PW1 and PW2 in an attempt to commit the offence of robbery. B

In this case the conviction of the appellant for murder of the deceased stands or falls on the evidence of PW1 and PW2. C

According to the evidence of PW1 on 28 September 1991 at about 9 pm, he was in the company of the deceased and one Florida Ndosi (PW2) at Kivulini Bar quenching their thirst. They remained there for a while and left to Tanta Bar. As they were on their way to Tanta Bar the deceased and himself were assaulted by two people whom they identified as Chichi, the appellant, and one Simon Alfayo. D When they asked their assailants why they were attacking them the assailants attacked them all the more and the appellant took a knife from inside the pocket of his jacket. At this juncture the witness told the trial Court that he ran away to enlist assistance from his watchman (PW3) - And added `I left the accused fighting with the deceased while holding a knife'. E

PW2's testimony was to the effect that after Kivulini Bar they left to PW1's place of work and that as they were going two young men came from the side of the path and slapped the deceased on the shoulder. The deceased asked the young men why they assaulted him and a reply came from one of them - `Tunataka kukunyang'anya pesa'. F

The appellant said in his defence given on oath that he was also at Kivulini Bar on the material evening drinking. From Kivulini Bar he went to `Baa ya John Lema' where he drank beer. From there he proceeded to a hotel of Mama Elizer. G Thereafter he went home accompanied by one Simon Alfayo. On the way they met three people, two gentlemen and a lady walking at close-range; the lady being in the middle. He recognized one of the men as Elibarjki (PW1). According to his H defence he greeted them in a perfectly proper manner - `Jamani habari ya saa hizi' but they did not reply. He all the same touched the lady's shoulder and said to her - `Naona leo uko na akina Niko'. PW1 is said to have replied - `Kwani unafahamu huyu mwanamke', jumped on the appellant and held him by his shirt and at the same time the deceased hit him with his fist and fell him on the ground and held him by his I

A neck. According to his defence it was when he was being held on the ground that he pulled his knife and stabbed the deceased in self-defence.

In finding the appellant guilty of the offence of murder the learned Judge said inter alia:

B `In other words the accused cannot be heard to say that he was overpowered and therefore justified to stab the deceased so as to reduce the act of killing to that of manslaughter as found by the assessors in their opinions. It will be an extremely bad precedent to allow someone to deliberately and with unknown motive attack another person and in the course of the ensuing struggle the attacker should be heard to say that he has been overpowered and C thus entitled to kill the other person'.

D In this case both the evidence of the prosecution and the defence case is ad idem that the appellant, PW1 and the deceased were drinking at Kivulini Bar. It is also clearly brought out from the prosecution case and the defence that the deceased and the appellant fought on the

material night. As for the learned State Attorney's submission that the appellant ambushed the deceased and his E companions and that he committed the offence of murder as he was attempting to commit the offence of robbery we are far from being persuaded by this argument. If the appellant had in fact decided to commit robbery he could not have been so naÝve as to say to his victim - `Tunataka kukunyang'anya pesa' bearing in mind F that the appellant, the deceased and PW1 were fellow villagers. That he would have decided to expose himself in such manner is, to say the least, beyond our comprehension. If he in fact said so it was, in our view, more of a drunken froth than an intent of malice.

Coming back to the question of the appellant and the deceased having fought it was, on our view, a misdirection on the part of the learned Trial Judge when he said: G

`Even if I was to find that the deceased's death was caused under the circumstances described by the accused, I would still hold that the death of the deceased was murder. This is because the accused having been the one who started the fight he cannot turn round and say H that he was acting in self-defence'.

This was a misdirection because if the appellant's version was accepted the defence of self-defence would have been available to him.

It has been said times without number, and we would like to reiterate, that where death is caused as a result of a fight an accused I

person should be found guilty of the lesser offence of manslaughter and not A murder. See the decision in R v John Wimaana (1). Maybe it is not irrelevant to mention if only in passing the defence case that the lady (PW2) in some ways sparked the fight between the deceased and the appellant. This defence was apparently not adverted to by the learned Judge in his judgment. After out close B review of the evidence tendered before the High Court we are satisfied that the question of the appellant's guilt regarding the charge of murder `is so complicated and uncertain that the Court of first instance ought to have felt some doubt about it' - R v Ramzan Ahmed Jamal (2). On the evidence we are not surprised that the assessors were unanimous that the appellant was only guilty of the lesser offence of manslaughter contrary to s 195 of the Penal Code. C

In the event the conviction for murder is hereby quashed and the sentence of death is set aside. In substitution therefore the appellant is convicted of the lesser offence of manslaughter contrary to s 195 of the Penal Code. D

As for the sentence to be imposed the appellant used a knife in killing the deceased. The use of a knife in a fight is always a telling factor against an accused person. The appellant is sentenced to ten years imprisonment. E

G

[zRPz]MOHAMED HASSANI v MAYASA MZEE AND MWANAHAWA MZEE 1994 TLR 225 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

CIVIL APPEAL NO. 20 OF 1994
23 December, 1994 H
(From the decision of the High Court of Tanzania at Tanga, Msumi, J)
Flynote
Probate and Administration - Administration of Estate - Powers of the Primary Court to appoint and replace an administrator - Rules I
1994 TLR p226
A 2(a) and (b) of the First Schedule of the Magistrates' Courts Act, 1984.
Probate and Administration - Challenging validity of appointment of an administrator - Onus of proof.
Probate and Administration - Disposition of property - Whether consent from all heirs is necessary before sale of property. B
-Headnote
This was an appeal against the decision of the High Court that the appointment of one Mfundo Omari as an administrator of the estate of the late Mzee Risasi was void because it was done under Rule 2(b) and not under Rule 2(a) of the Fifth Schedule to the Magistrates' Courts Act, 1984, and thus he had no power to C dispose the property of the deceased's estate and, therefore, his sale of the house to the appellant was null and void. It was argued by the appellant that the appointment was valid under Rule 2(b) because it was a replacement and not a first appointment.
D Held:

(i) Primary courts are empowered under Rule 2(a) of the Fifth Schedule to the Magistrates' Courts Act, 1984, to make first appointment of administrators of estate and Rule 2(b) of the same schedule for appointment of a replacement. Therefore the Judge was wrong to restrict the powers of Primary Courts to appoint administrators to Rule 2(a). E

(ii) It is up to the person challenging the validity of appointment of an administrator by the court to show that the person so appointed does not have the required qualifications to administer the estate.

(iii) The administrator is not legally required to obtain consent of all the heirs before disposing of property or sale of a house. F
Case Information
Appeal allowed.
Case referred to:

(1) Aziz Daudi Aziz v. Amin Ahmed Ally and Another, Civil Appeal No 30 of 1990 (unreported). G
Semgalawe, for the appellant.
Lamwai, for the respondents.
[zJDz]Judgment

Mfalila, JA, delivered the following considered judgment of the Court: H

In the Court of the Resident Magistrate at Tanga, the appellant, Mohamed Hassani, sued the two respondents with another person, Mfundo Omari, now deceased, claiming that the three should convey to him the house on plot No 2 Block 86 Central Ngamiani area in Tanga Municipality, the house which had been sold to him by I

Mfundo Omari in his capacity as administrator of the estate of the late Mzee A Risasi. The two respondents, the sisters Mayasa and Mwanahawa, are the daughters of the deceased Mzee Risasi, while the late Mfundo Omari was appointed administrator of the estate of the late Mzee Risasi by the Primary Court Tanga in Cause No 6 of 1984. The appellant won his claim in the Resident B Magistrate's Court which ordered the respondent's to convey the house to him and also to refund him all the rents they had been unlawfully collecting from the date of purchase of the house to the date of judgment. The respondent successfully appealed to the High Court at Tanga where Msumi J held that since Mfundo's C appointment as administrator of the estate was void under Rule 2(a) of the Fifth Schedule to the Magistrate's Courts Act, he had no power to dispose of the property of the deceased's estate and that therefore his sale of the house to the appellant was null and void. Accordingly, he restored the house to the two D respondents. The appellant felt greatly aggrieved by this decision, he lodged this appeal complaining in his three point memorandum of appeal first that the learned Judge erred in law when he held that the Primary Court had no power to appoint Mfundo Omari administrator of the estate of the late Mzee bin Risasi and that he was not properly appointed according to Rule 2(a) of the Fifth Schedule to the E Magistrate's Courts Act.

Secondly, the appellant complained that the learned Judge erred in fact when he held that the sale of the suit house was arbitrary and did not take into consideration the interests of the estate when there was ample evidence to prove that the suit house was at stake. F

Thirdly, that the learned Judge erred in law in holding that there was no consent of the beneficiaries to sell the suit house when in fact the authority to sell was vested in the administrator by the operation of the grant under which he was appointed. G

At the hearing of this appeal, Mr Semgalawe, learned advocate who appeared for the appellant, argued in support of the first ground of appeal that since Rule 2(a) applies to grants made in the first instance and not replacement, Mfundo Omari must have been appointed under Rule 2(b) and that therefore his appointment was valid. H

In opposing this ground, Dr Lamwai, learned counsel who appeared for the respondents, advanced three reasons for his view that Mfundo Omari was not properly appointed and that therefore this Court should uphold the appointment of the first respondent Mayasa Mzee as administrator of the estate. First, he said that the purported appointment of Mfundo Omari was made while Mayasa's I

A was still in force, it had not been revoked as claimed. He conceded that the Primary Court Magistrate (PW 5) gave evidence to this effect but he added that that witness did not produce the record of the Primary Court to confirm his evidence. Secondly, he said that Mfundo Omari did not qualify to be appointed administrator under Rule 2(b) because the Court did not state Mfundo's B qualifications under that sub-rule. Thirdly, he said that since the house was already in Mayasa's name, such transfer was already effective under Rule 4 as there had been no complaint against this transfer.

C On our part we do agree with Mr Semgalawe that the Primary Court can only use Rule 2(a) to make first appointments not replacements. We also agree with him that Mfundo Omari as a replacement could only be appointed administrator under sub-rule (b), and that therefore his appointment was made under that sub-rule. We are therefore satisfied that the learned Judge was wrong to restrict the powers of Primary Courts to appoint administrators to sub-rule (a). The next D question is whether this appointment was valid in light of the objections raised by Dr Lamwai. As indicated, Dr Lamwai's first objection was that Mfundo could not be appointed administrator to replace Mayasa whose appointment had not been E revoked for the reason which he gave. We are satisfied that this objection has no basis. First, where is the evidence of the Primary Court Magistrate who handled this Administration Cause, ie PW5. According to him, he revoked Mayasa's F appointment after receiving complaints from other beneficiaries of the estate and that therefore he appointed Mfundo Omari as a replacement. The record shows that the Primary Court record was produced as an exhibit. This objection must therefore fail. The second objection was that the Primary Court did not specifically state in what way Mfundo Omari was qualified to be appointed administrator under sub-rule (b). This sub-rule provides: G

`either of its own motion or on the application by any person interested in the administration of the estate, where its consideration that it is desirable so to do for the protection of the estate and the proper administration therefore, appoint an officer of the court or one reputable and H impartial person able and willing to administer the estate to be administrator either together with or in lieu of the administrator appointed under Sub-paragraph (a)'.

It is clear in the circumstances of this case that Mfundo Omari was appointed under the second limb as a `reputable and impartial person able and willing to administer the estate'. We think that the fact of the appointment is evidence that the Court was satisfied that the person so appointed is I

a `reputable and impartial person able and willing to administer the estate', it is A therefore up to the person challenging the validity of the appointment to show and establish that the person so appointed does not have these qualifications. It is not enough as Dr Lamwai sought to do in this case merely to say that the court did not B indicate in what way the court was satisfied that the appointee possessed those qualifications. This objection must therefore also fail. Lastly, Dr Lamwai's third objection has no merit because the sale of the house to the appellant was made after not before the revocation of Mayasa's appointment.

For these reasons we uphold the appellant's first ground of appeal. C

We intend to deal with grounds two and three together as those are related. We think and are satisfied that in the circumstances of this case, selling the house and distributing the proceeds among the various contending heirs, was the only sensible option open to the administrator. The record shows that there are two D hostile contending groups among the heirs of the late Mzee bin Risasi. The heirs are grouped according to their mothers. There is absolutely no way of reconciling the two groups. We are therefore satisfied that the decision to sell the suit house was not arbitrary, in fact it was in the best interests of the estate and all the heirs. With regard to the question whether consent of all the heirs should have been E sought before selling the house, firstly, it was impossible to obtain such consent from the two hostile groups. Secondly, the administrator was not legally required to obtain such consent. As this court stated in Aziz Daudi Aziz v Amin Ahmed Ally & Another (1): F

`We cannot find in the evidence before the High Court that there was anything wrong with the sale of the house. Once an administrator of the estate was appointed then the house of the deceased owner of the property is changed in all documents and that of the administrator is substituted and it is left to his discretion to administer the estate in the best way he can....'. G

Accordingly we uphold the complaints in both grounds two and three. H

Before we rest and make the necessary orders, we wish only to mention that in the course of the hearing of this appeal, two members of the court thought aloud and wondered whether the Primary Court had jurisdiction to administer this estate involving as it did registered land, in view of the provisions of s 18(1) of the Magis- I

A trate's Courts Act. But since this was not a substantive issue in this appeal, we do not intend to say any more about it.

Turning now to the appeal, we have already upheld all the grounds in the appeal, but having done so, we are still extremely uneasy about the fairness of the sale. There are two documents, both executed by the late administrator Mfundo Omari, B and each of them bearing a different purchase price. The first document dated 28 March 1985 shows that the house was sold to the appellant for Shs 147,680/= whereas the second document dated 5 October 1985 shows that the same house was sold to the appellant for Shs 200,000/=. Which then is which? We think it C would be fair both the estate and the heirs if this difficulty was resolved by ordering a new sale. For the foregoing reasons, we allow the appeal and set aside the judgment and orders of the High Court. But we set aside the two sales dated 28 March 1985 and 5 October 1985 and order a new sale of the house by public D auction in which the present appellant will be allowed to bid. If his bid succeeds then he can have the house and the purchase price so far paid will be credited to him. In the event he is unsuccessful, however, the purchase price is to be refunded to him. The appellant will have his costs both in this Court and in the Courts below. E

F

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga JJA, Mfalila JJA and Lubuva JJA G

CIVIL APPEAL NO. 23 OF 1993
11 November, 1994
(From the decision of the Court of Tanzania at Dar es Salaam, Bahati, J) H
Flynote
Labour Law - Jurisdiction - Summary dismissal - Ouster of the jurisdiction of the court - Section 28 of the Security of Employment Act, 1964. I
1994 TLR p231
Labour Law - Jurisdiction - Summary dismissal - Whether the court can split suit into A compartments so as to exclude claims based on summary dismissal.
Civil Practice and Procedure - Amendment of cause of action - Whether judge can amend pleading without application of the parties. B
-Headnote
This is an appeal against the decision of the High Court of Tanzania which, having accepted a preliminary objection that the court had no jurisdiction to hear the suit because it concerned summary dismissal, the court nevertheless proceeded to split the entire suit into separate compartments and held that as not all reliefs C claimed were based on summary dismissal, the court had jurisdiction to hear and determine those claims which were not based on summary dismissal.
Held:

(i) Section 28 of the Employment Act, 1964, ousts the jurisdiction of the court in cases of summary dismissal, proposed summary dismissals D and salary deductions as a disciplinary penalty; since the three situations have nothing to do with one another, they can be taken independently of each other;

(ii) The court cannot split a claim once it is partly found to be based on summary dismissal and the claims in this case were so interwoven on their foundation; E

(iii) The court cannot take upon itself, without application from the parties, to amend the basis of the cause of action merely to take the claim away from the ouster clause of s 28 of the Security of Employment Act.

Case Information
Appeal allowed. F
Cases referred to:

(1) Kitundu Sisal Estate v Shingo and Others [1970] EA 551.
(2) Mohamedi and Others v Manager, Kunduchi Sisal Estate [1971] HCD 430. G
(3) Allimasi v MS Kerewala Ltd, [1974] LRT 39.

Majithia, for the appellant.
Mbuya, for the respondent.
[zJDz]Judgment

Mfalila, JA, delivered the following considered judgment of the Court: H

The respondent, Jose Xavier Ferreira, sued his erstwhile employers, Royal Dutch Airlines, otherwise popularly known as KLM by its acronym, claiming an assortment of reliefs including unpaid salary, transport and meal allowances and other reimbursements plus in- I

1994 TLR p232

MFALILA JA

A terest at 31 per cent per annum from the date these payments were due to the date of judgment and at a further 31 per cent interest on the damages from the date of filing the suit to the day of judgment. The basis of these claims is contained in paragraph 6 of the plaint which is in the following terms:

B `Furthermore, the defendant willfully and without any notice, cause or justification in contravention to the defendant's regulations as contained in the aforesaid conditions of employment - Local Staff Tanzania, unilaterally stopped the plaintiff from attending to his duties with affect from 20th November 1986 and until to-date has not lawfully terminated plaintiff's employment'. C

In his written statement of defence and at the beginning of the trial in the High Court, the defendant, the present appellant, raised preliminary points challenging the jurisdiction of the Court dn that the plain disclosed no cause of action. In D support of the preliminary point, Mr Majithia argued on the High Court that as this was a case of summary dismissal, the jurisdiction of the Courts was ousted by s 28 of the Security of Employment Act. The High Court (Bahati, J) agreed with Mr Majithia that this was a summary dismissal case and that therefore the jurisdiction E of the court was ousted by s 28 of the Security of Employment Act. After making this finding, the trial judge then proceeded to recategorize the entire suit into separate compartments and held that as not all the reliefs claimed are based on summary dismissal, the court has jurisdiction to hear and determine those claims which are not based on summary dismissal. He said: F

`But not all the claims in this case are based on summary dismissal. In paragraph 5 of the plaint there are claims for remuneration from March 1984 to-date, reimbursement of money G paid by plaintiff to purchase tickets, failure by defendant since 1985 to honour fully the plaintiff's free and reduced fare air travel facilities. These claims are not based on summary dismissal because they are from 1984 whereas summary dismissal was in November 1986. These claims have, therefore nothing to do with summary dismissal and as such they cannot be excluded by Section 28 from the jurisdiction of this Court'. H

The judge therefore held that the jurisdiction of the Court was not ousted by s 28 and he ordered the case to be heard and determined on merits. Against this ruling, the appellant Airline lodged this appeal complaining that the learned judge having found that there was summary dismissal, erred in not rejecting the plaint and I

1994 TLR p233

MFALILA JA

dismissing the suit and that therefore the learned judge erred in ruling that the A Honourable Court had jurisdiction to entertain claims based on summary dismissal.

At the hearing of the appeal, Mr Majithia, learned counsel who advocated for the appellant, submitted that having determined that this was a case of summary B dismissal, the judge should not have decided to proceed with the case on merits on the basis that some of the claims which he enumerated were not claims which he said were not summary dismissal flowed directly from such summary dismissal.

In reply, Mr Mbuya, learned counsel who appeared for the respondent, argued that C the definition of summary dismissal enunciated in Kitundu Sisal Estate v Shingo and Others (1) is erroneous because it defined summary dismissal without taking into account the definition given in the Act itself namely that under the Act, termination becomes summary dismissal if there is intention to take disciplinary D action, and that since in the present case the only intention was to terminate the respondent's services with the appellant, such termination could not be summary dismissal ousting the jurisdiction of the courts under s 28 of the Security of Employment Act. Mr Mbuya concedes that the High Court was bound by the E definition in the Kitundu case but he said that this court is not. He supported the judge's action of severing the claims into those falling under the prohibition of s 28 and those which do not. He argued that claims available prior to the termination are not interwoven with the summary dismissal hence they can be severed. F

We start with Mr Mbuya's second argument that this was not a summary dismissal case because no disciplinary action was envisaged. Mr Mbuya based this argument no doubt on the wording of s 28 of the Security of Employment Act which provides as follows: G

> `28 - (1) No suit or other civil proceeding (other than proceedings to enforce a decision of the Minster or the Board on a reference under this part) shall be entertained in any Civil Court with regard to summary dismissal or proposed summary dismissal or a deduction by way of disciplinary penalty from wages of an employee'. H

If Mr Mbuya sat back and reflected, he would no doubt find as we do that this section bars three types of situations from being actionable in Civil Courts. First, all summary dismissals, second all proposed summary dismissal and thirdly all deductions as disciplinary penalties from wages of employees. It is quite obvious that I

A the first two situations have nothing to do with the third situation in which an employer deducts a sum from the wages of his employee as a disciplinary measure. Since the three situations have nothing to do with one another, they can be taken independently of each other. Hence, the Court of Appeal in the Kitundu case could not have defined summary dismissal with reference to the disciplinary action envisaged under a different situation. B

We return to the High Court finding that since not all the respondent's claims can be regarded as flowing from the summary dismissal, then these other claims which do not are actionable in a Civil Court. According to the learned judge, these include all those claims which arose before the summary dismissal in November 1986. C

In our view the first objection against this line of reasoning is that it conflicts with two earlier decisions of the case Court, decisions with which we are in agreement. The effect of these two

decisions is that you cannot split the claim once it is found to be based on summary dismissal. The first of these cases is Mohamedi & D Others v Manager Kunduchi Sisal Estate (2).

In that case fifty six persons who were employed by the Kunduchi Sisal Estate, sued their employer claiming Shs 81,741/= as compensation because of E termination of their services without notice. This sum comprised of severance, leave and travel allowances as well as month's wages in lieu of notices. The Court held that the basis of the claim was summary dismissal and that by s 28 of the Security of Employment Act Cap 574 the jurisdiction of the Court was ousted. In his own words Onyiuke, J held: F

`When an employee is dismissed summarily without justification he has a cause of action against the employer, that is to say he can bring an action of summary dismissal against the employer. Usually it takes the form of action for damages. These damages may be general or G special depending on whether the employee is claiming a specified amount such as severance allowance or annual leave pay (special) or is asking the Court to assess his loss such as the claim for reasonable notice (general). These claims have to be founded on the cause of action . . . . Assuming without deciding the point that Section 32(b) provided an alternative remedy, the fact still remains that the cause of action is basically one for summary dismissal'. H

Similarly in the present case, the claims which the learned judge attempted to sever from the rest, are all founded or based on the wrong described in paragraph 6 of the plaint namely that the defendant (present appellant) `willfully and without any notice, cause of justi- I

fication . . . unilaterally stopped the plaintiff (present respondent) from attending to A his duties with effect from 20th November 1986....'.

The second case is Allimasi v M S Kerewala Ltd (3). That case commenced in the District Court as a result of a report submitted by the Labour Office Mtwara to the District Court under s 132 of the Employment Ordinance. The appellant was a B driver by calling. The respondent was a limited liability company carrying on quarrying operations among other activities in Mtwara/Mikindani. The appellant's case was that he was employed by the respondent in 1959 as a driver on a monthly wage of Shs 250/= and that he had worked continuously for the C respondent up to 20 October 1971 when his employment was terminated without notice, and without payment in lieu of notice. He claimed Shs 250/= being one month's wage in lieu of notice and Shs 1,625/= being severance allowance for fifteen years continuous service. D

The trial magistrate treated the appellant's claim as one of summary dismissal holding that since the plaintiff was neither given a notice nor paid in lieu of notice, then his termination in law is that if summary dismissal and that therefore he had no jurisdiction under s 28 of the Security of Employment Act. Against this decision E the appellant appealed to the High Court where one of the points raised in his favour was whether the appellant's claims could be treated separately so that his claim for severance should have been entertained in the Court below, and that if this was possible the learned judge should not have dismissed that part of the appellant's claims for want of jurisdiction. Sections 3, 4 and 11 of the Severance F Allowance Act Cap 487 were cited in support of this submission. Section 3 provides:

`3 - Subject to this Act where an employee has been in the continuous employment of an employer for a period of three months or more and, on or after the twenty fifth day of June 1962: G

(a)(1) The employment is terminated by the employer ... the employer shall pay to the employee a severance allowance'.

Section 4(1) of the Act provides: H

`An employer shall not be liable to pay any severance allowance to or in respect of any employee who:

(a) Immediately before the cessation of his employment was

(1) -

(2) A casual employee

(b) Was summarily dismissed for lawful cause. I

1994 TLR p236

MFALILA JA

A And s 11 provides as follows:

`The amount of any severance allowance which an employer is required to pay to or in respect of an employee, may be recovered by the employee or in the event of his death by any of his dependants by suit as a debt to such employee or to such dependants'.

B Onyiuke, J held as follows:

`I do not think that Section 11 of the Severance Allowance Act can be sued to bypass the mandatory provisions of Section 28 of the Security of Employment Act. The basis of the C appellant's claim whether in respect of the one month's wage or in lieu of notice or of severance allowance was that his employment was wrongfully terminated, that is to say summary dismissal for lawful cause and that he was therefore entitled to his claims. But for Section 28 of the Security of Employment Act the Court would have to inquire into the issue of D wrongful dismissal. The effect of Section 28 however is to oust the jurisdiction of the Court to do just that. I hold that the appellant's claims are so interwoven that they fall within the ambit of prohibitory provisions of Section 28 of the Security of Employment Act and that the learned Magistrate was justified in dismissing his claim for lack of jurisdiction'. E

We are also able to say in this case that all the respondent's claims are so interwoven on their foundation that they fall within the ambit of the prohibitory provisions of s 28 of the Security of Employment Act. We are satisfied that had the F decisions in these two cases been brought to the attention of the learned judge, he would most certainly have followed their powerful reasoning and conclusions.

The second objection to the learned judge's reasoning is procedural. The learned judge's approach amounted to amending the plaint at that stage of the G proceedings and indeed that is what Mr Mbuya was asking us to do. The learned judge could not take it upon himself to amend the basis of the cause of action without application from the parties merely to take the claim away from the prohibitory provisions of s 28. It is even more remote in this Court. H

Since as the learned judge found the respondent's claims were based on summary dismissal, the jurisdiction of the courts was ousted by s 28 of the Security of Employment Act, the learned judge should have allowed the preliminary objection and dismissed the claim.
Having so decided on the question of jurisdiction, we feel it is I
1994 TLR p237
unnecessary to consider the second limb of the appellant's preliminary objection A namely whether the respondent's plaint disclosed a cause of action.
For these reasons we allow the appeal and order that the respondent's claim be dismissed for want of jurisdiction. The appellant will have their costs both in this Court and in the Court below. B
1994 TLR p237
D
[zRPz]LAUSA ALFAN SALUM AND 106 OTHERS v MINISTER FOR LANDS, HOUSING AND URBAN DEVELOPMENT AND NATIONAL HOUSING CORPORATION 1994 TLR 237 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Omar JJA, Mnzavas JJA and Mfalila JJA E

CIVIL APPEAL NO. 15 OF 1994
9 November, 1994
(From the decision of the High Court of Tanzania at Mwanza, Chipeta, J) F
Flynote
Rent Restriction - Powers of the Minister to grant exemption - Section 2(1)(b) of the Rent Restriction Act, 1984.
Administrative Law - Ultra vires Doctrine - Whether Government Notice 41 of 1992 granting G exemption to the National Housing Corporation was ultra vires - Exempts - Specified parastatal instead of a class of premises as provided by s 2(1)(c) of the Rent Restriction Act, 1984.
Constitutional Law - Whether GN 41 of 1992 was discriminatory contrary to article 13(2) of the Constitution of the United Republic of Tanzania.
Constitutional Law - Whether GN 41 of 1992 was arbitrary - contrary natural justice and H equality before the law.
Constitutional Law - Drafted in so wide terms as to net even untargeted groups - Whether saved by article 30(2) of the Constitution. I
1994 TLR p238
-Headnote
A The appeal was against the decision of the High Court to uphold as valid the Government Notice No 41 of 1992 issued byt the Minister for Lnads, Housing and Urban Development under s 2(1)(b) of the Rent Restriction Act, 1984 exempting the National Housing Corporation from all or any of the provisions of the Act. The High Court held that Government Notice No 41 of 1992 was both ultra vires and constitutional.

B Held:

(i) The Government Notice No 41 of 1992 does not and did not intend to grant arbitrary powers to the National Housing Corporation to increase rent;

(ii) The National Housing Corporation cannot arbitrarily raise rent „beyond economic rates, if it does, tenants can seek redress in the ordinary courts; C

(iii) The Government Notice No 41 of 1992 does not violate the concept of equality before the law enshrined in article 13 of the Constitution.

(iv) The Rent Restriction Act 1984 under s 2(1)(b) empowers the Minister responsible for housing to exempt any premises or class of premises from the provisions of the Act and the premises exempted by Government Notice No 41 of 1992 are covered under the description any; D

(v) The order in Government Notice 41 of 1992 is constitutional and ultra vires as the Minister did only what he is allowed and empowered to do by the Rent Restriction Act, 1984, namely to exempt the premises owned by the specified parastatals from the provisions of the act; E

(vi) The exemption order by the Minister was perfectly valid and lawfully made under the validly delegated authority and therefore the new rents imposed by their landlord are valid.

Case Information

Appeal dismissed.

F Cases referred to:

(1) Shah v Attorney General [1970] EA 523.

(2) Juthalal Velji Ltd v THB Estates Co Ltd, Civil appeal No 11 of 1985 (unreported).

(3) Minister of National Revenue v Wrights Canadian Ropes Ltd, [1947] AC 109. G

Matata, for the appellants.

Magoma, Senior State Attorney for the respondents.

[zJDz]Judgment

Mfalila, JA, delivered the following considered judgment of the Court: H

In the High Court of Tanzania at Mwanza, the appellants Lausa Salum and Others whose number varies from 106, 116 to 206 filed an application praying for orders of certiorari against the two respondents namely the Minister for Lands, Housing and Urban Development and the National Housing Corporation that: I

(a) the entire order of the Minister GN 41 of 1992 be quashed. A

(b) the action of the National Housing Corporation increasing the rent of its premises occupied by the applicants be quashed.

The background to these proceedings may be easily stated. The second B respondent, the National Housing Corporation, was established by an Act of Parliament, the National Housing Corporation Act No 2 of 1990. Section 11 of the Act provided that the rents chargeable for the premises belonging to the Corporation shall be set by the Corporation subject to the provisions of the Rent C Restriction Act 1984. The Rent Restriction Act also created the Housing

Tribunals and their appellate body, the Housing Appeals Tribunal. Section 2(1)(b) of the Rent Restriction Act empowers the Minister responsible for Lands, Housing and Urban Development, by order published in the Gazette with the approval of the National Assembly signified by a resolution, to exempt any premises or class of premises D from all or any of the provisions of the Rent Restriction Act. Using these powers, the Minister responsible for Lands, Housing and Urban Development promulgated Notice No 41 of 1992 exempting all premises in respect of which a specified E parastatal body is the lawful landlord from all the provisions of the Rent Restriction Act relating to the restriction on the amount of rent that may be charged or collected by the specified parastatal body as the landlord from any tenant occupying any part of these premises. The second respondent was among the specified parastatals. Following the publication of GN 41 of 1992, the second F respondent increased rents for all its premises including those occupied by the appellants. The appellants objected very strongly to those rent increases which they called unilateral. When their protests were rejected by the second respondent, they filed an application in the High Court challenging the validity of G both the GN 41 of 1992 and the increases of rent based on it. The appellants challenged the validity of GN 41 of 1992 on two grounds.

The first ground was that GN 41 of 1992 is ultra vires the parent Act because it exempts specified parastatals instead of a class of premises as provided by s 2(1)(c) of the parent or enabling Act. H

The second ground was that GN 41 of 1992 is unconstitutional for the following reasons. Firstly that it is discriminatory. That it discriminates against the appellants by depriving them of the protection afforded by the Rent Restriction Act against arbitrary eviction, distress for rent and the right to statutory tenancy which is otherwise available to I

A tenants generally and that this discrimination is contrary to article 13(2) of the Constitution of the United Republic. Secondly that it bars the appellants from litigating their rights as tenants in the Housing Tribunal and that this is contrary to article 13(3) of the Constitution. Thirdly, that it provides no safeguards against abuse of power by the second respondent. B

The appellants challenged the validity of the rent increases by the second respondent on the basis that since the order under which they were made is invalid, such increases were in contravention of s 11 of the National Housing Corporation Act 1990.

C The High Court dismissed the application, the learned judge holding that GN 41 of 1992 was both intra vires and constitutional. He held that since contrary to the appellant's assertions, GN 41 of 1992 exempts a class of premises ie those owned by the specified parastatal bodies, the order is in accord not inconsistent with the parent Act and that therefore it is within its ambit. Regarding the D constitutionality of GN 41 of 1992, the learned judge held firstly that it comes within the saving provisions of article 30(2) of the Constitution because it is not drafted in such wide terms as to net untargeted groups. Secondly that it is not discriminatory in that it affects all the tenants of the specified parastatals. Thirdly that it does not E shut out the tenants of the specified parastatals from legal recourse in that ordinary courts are available to the tenants to enforce their contractual rights against their landlords. Fourthly that although the Government

Notice should have contained a provision limiting the power of the parastatals to increase rent to F economic rent, he held that the absence of such a clause was not fatal as the courts can still intervene where unconscionable increases in rent are made. Accordingly he dismissed the application with costs.

Against this decision the appellants filed this appeal. Mr Matata, learned counsel G on behalf of the appellants, filed five grounds of appeal. In the first ground he complained that the learned judge having found that the first respondent's order (GN 41 of 1992) has no legal safeguards against the abuse of power, he ought to have found that the order is bad in law and unconstitutional because it violates article 13 of the Constitution of the United Republic of Tanzania. At the hearing of H this appeal, Mr Matata expanded on this complaint submitting that GN 41 of 1992 is unconstitutional because first it allows the second respondent to act arbitrarily and secondly it violates the concept of equality before the law enshrined in article 13 of the Constitution. He added that the Rent Restriction Act avails all the tenants to two basic rights. The protection against I

increase of rent except on the formula given by the Act and statutory tenancy at A the end of the existing term. GN 41 of 1992 removes both these rights, and that since the first respondent's order ousts the jurisdiction of the Housing Tribunal, it leaves the second respondent free to treat its tenants in any way it likes as it did in the rent increases in this case and against such arbitrary actions, the tenants are left defenceless. The effect of the order, Mr Matata went on, is to create two B categories of tenants, those with full protection under the Rent Restriction Act and those without such protection.

On behalf of the first respondent, Mr Magoma, the learned Senior State Attorney, C supported the High Court judgment on the validity of GN 41 of 1992 stating that it was made within the four corners of the law empowering the first respondent to make it and that it does not in any way violate the Constitution of the United Republic.

In support of his contention that Courts can and should intervene in respect of D legislation without proper safeguards against arbitrary action, Mr Matata cited the decision of the High Court of Uganda in Shah v Attorney General (1). It is true that the learned judge found that GN 41 of 1992 had no safeguards against arbitrary E increases of rent, but he did not think this was necessarily fatal to the validity or constitutionality of the order because in his view tenants of the second respondent could pursue and enforce their legal rights in the ordinary courts. In the Shah case quoted above, the court felt obliged to intervene because the legislation in question, ie The Local Administration (Amendment) Act 1961, violated the provisions of article 8 of the Uganda Constitution in that: F

`(a) It had the effect of depriving a party of property without compensation.

(b) It had the effect of depriving an aggrieved party of "protection of the law" in that it shut out litigation and prevented him from ventilating his grievances in Court. G

(c) It gave power to the Minister responsible to nullify even court judgments including the High Court'.

We therefore ask ourselves whether GN 41 of 1992 has any of these or similar H effects. We do not think so. Like the learned judge we think it would have been fairer if the order had provisions safeguarding the interests of the tenants against the possibility of arbitrary increases of rent by their powerful landlord, but we are satisfied that despite being freed from the controls in the Rent Restriction Act by GN 41 of 1992, the second respondent does not have and the order did I

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A not intend to grant it arbitrary powers to increase rent. We are satisfied that the second respondent cannot arbitrarily raise rents beyond economic rates, if it does, the appellants and indeed all the tenants of the second respondent countrywide can seek redress in the ordinary courts. In the circumstances, it is not correct to say that GN 41 of 1992 created two categories of tenants, one enjoying legal B protection and the other without such legal protection. The correct position is that GN 41 of 1992 removed the appellants and all tenants of the second respondent C from the protection of the Housing Tribunals under the Rent Restriction Act and as it were transferred them to the ordinary courts. We therefore agree with the learned judge that GN 41 of 1992 does not violate the concept of equality enshrined in article 13 of the Constitution. We also wish to affirm the principle in the decision of this Court in Juthalal Velji Ltd v THB Estates Co Ltd (2) relied on by D the learned judge and which is on all fours with the present case to be good law. Mr Matata sought to distinguish Velji's case from the present one on the basis that in Velji's case the rent was based on the economic value of the building based on the valuation report which was produced in the High Court whereas in the present E case there was no such violation. Secondly that the exemption in Velji's case was specific to a specific building. We do not think these distinctions are valid. The presence or absence of a valuation report would be relevant when considering the reasonableness of the rent charged not the validity of the legislation conferring power to charge such rent. Secondly, limiting the exemption to specific buildings is F in accord with the legislation which directs that the exemption may be in respect of any premises or class of premises. In Velji's case, they sought to exempt `Tecco Godowns' in Mikocheni Industrial Area as a class of premises.

G In the second ground, the appellants complained that had the trial judge properly interpreted the order (GN 41 of 1992) vis-È-vis the enabling provision (s 2(1)(b)) of the Rent Restriction Act 1984, he would have found that the order in exempting a group of parastatals instead of a class of premises, was ultra vires the enabling provisions. In support of this ground, Mr Matata submitted that GN 41 of 1992 is H ultra vires because the relevant enabling section refers to a class of premises whereas the exemption in the order is based on the ownership of those premises. We think with respect that this submission is based either on a misreading or partial reading of the section of the order. Section 2(1)(b) of the Rent Restriction Act 1984 provides: I

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`2 - (1), This Act shall apply to all dwelling houses and commercial premises other than: A

(a) -

(b) Any premises or class of premises which the Minister may with the approval of the National Assembly, signified by a resolution, by order published in the Gazette, exempt from all or any of the provisions of this Act'.

And para 3 of the exemption order reads in part: B

`3., All premises in respect of which a specified parastatal is the lawful landlord are hereby exempted from all the provisions of the Rent Restriction Act'.

Reading these two provisions together, we do not see how paragraph 3 of the C Order can be considered to be outside the enabling provisions in s 2(1)(b) of the Act. Under s 2(1)(b) the Minster responsible for Lands, Housing and Urban Development can exempt two groups of premises from the provisions of the Rent Restriction Act. He can exempt any premises or class of premises. The premises D exempted by GN 41 of 1992 are covered under the description any, whereas those under GN 23 of 1983 are covered under the description class of premises. We therefore do not see why Mr Matata would want to limit the Minister's power of exemption to a class of premises when the first part of the section widens the E power to any premises. Since all premises must have owners, it is strange to suggest that an order would be rendered invalid simply by identifying their owner. For these reasons we are satisfied that GN 41 of 1992 is not ultra vires the enabling section of the Act. This ground of appeal therefore fails. F

In ground three the appellants averred that had the trial judge properly directed himself on the rules of statutory interpretation, he would have found that s 2(1)(b) of Act 17 of 1984 does not confer upon the first respondent parliamentary power to amend substantive provisions of a statute (s 11 of the National Housing G Corporation Act No 2 of 1990). In support of this ground, Mr Matata contended that the effect of the order by the first respondent was to amend s 11 of the National Housing Corporation Act which he was not empowered to do. In reply Mr Magoma contended that GN 41 of 1992 did not amend and was not intended to amend s 11 or any other provision of the National Housing Corporation Act. H

We agree with Mr Matata that the first respondent, the Minister for Lands, Housing and Urban Development, has no power to amend an Act of Parliament. But he has never purported to undertake such a task. In promulgating the order in GN 41 of 1992, the Minister was only doing what he is allowed and empowered to do I

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A by the Rent Restriction Act - namely to exempt the premises owned by the specified parastatals from the provisions of the Act. Being exempted from the operations of a particular law or order does not mean repealing or amending that particular law or order. It simply means that that particular law will not operate on a specified individual, body of individuals or organisation. Hence, you may have the Minister of Finance being empowered to exempt certain organisations from the B operations of say the Sales Tax Act. This does not mean that the

Finance Minister is empowered to amend the Sales Tax Act. The contention in this ground therefore fails.

C We have already held that the disapplication of the Rent Restriction Act to the premises owned by the second respondent, did not leave the appellants helpless without any remedy against the second appellants arbitrary or capricious actions. We have already held that the appellants or other tenants of the second respondent can still go to the ordinary courts to enforce their rights under the D tenancy agreements or to challenge the rents fixed by the second respondent under its new acquired authority. In the circumstances, we do not agree with Mr Matata that the appellant's right to go to the ordinary courts is illusory as we do not see any reason which can prevent them from going to the ordinary courts to enforce their rights as tenants. The contention in ground four similarly fails. E

Lastly, in ground five the appellants contended that had the learned judge properly directed himself on the second respondent's decision to raise rent, he would have found that the second respondent acted arbitrarily and contrary to the principles of F natural justice. In support of this contention Mr Matata cited a Privy Council decision in an appeal from Canada, Minister of National Revenue v Wrights Canadian Ropes Ltd (3). We think the decision in this case would have been relevant in the consideration of the present appeal if the appellants had been G challenging the reasonableness of the new rents not their validity. They would then in the process have provided the necessary data or information to support their challenge. Once it is held, as we have done, that the exemption order by the Minister was perfectly valid as it was lawfully made under validly delegated H authority, the validity of the new rents imposed by their landlord under the newly acquired authority cannot be successfully challenged. In the circumstances we agree with Mr Magoma that the only and best course for the appellants to take would have been to proceed by way of challenging their landlord to justify the new rates. The learned trial judge did rightly attempt not to resolve I

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the question whether the new rates are reasonable because he had no data or A other material to assist in such an undertaking. Accordingly we hold that this head of complaint also fails.

All the grounds of appeal having failed, the appeal fails and we dismiss it in its entirety with costs. B

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[zRPz]SCOLASTICA BENEDICT v MARTIN BENEDICT 1993 TLR 1 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Nyalali CJ, Makame JJA and Omar JJA

CIVIL APPEAL NO. 26 OF 1988 B

9 March, 1989
(From the Judgment and Decree of the High Court of Tanzania at Mwanza, Moshi, J.) C
Flynote
Civil Practice and Procedure - Functus officio - When a court becomes functus officio.
Probate and Administration - Administration of estates - Administration of registered land - Whether primary courts have jurisdiction. D
Magistrates' Courts Act - Jurisdiction - Administration of estates - Subject matter of administration is registered land - Whether primary court has jurisdiction - Sections 14 and 15 of the Magistrates' Courts Act, 1984 and Government Notice No. 320 of 1964. E
-Headnote
The appellant's husband died intestate in 1971. He was survived by two wives and a number of sons and daughters. The deceased left to his heirs substantial property including motor vehicles, farmland, cattle and houses. The administrators of the deceased's property distributed the property and the interests therein to the heirs in accordance with the guidance of the clan council acting under F Haya customary law. None of the widows of the deceased inherited any property of the deceased; instead they were required to reside with and be maintained by their respective children according to Haya customary law. The respondent, one of the sons of the deceased by his first wife, was given, G among other things, a house on plot Nos. 17 and 19 Block `D' in Bukoba township, in which the appellant, the second wife of the deceased had been living with her deceased husband. The only daughter whom the appellant had sired with the deceased was given, among other things, a farmland including a house in need of some repair at Kanoni Shamba. H
The appellant filed a civil suit in the Urban Primary Court of Bukoba challenging the administration of the estate of her deceased husband, particularly in respect of the house on plot Nos. 17 and 19 Block `D' in Bukoba township. The defendants resisted the suit on the ground, inter alia, that the I primary court had no jurisdiction on the subject-matter. The primary court overruled the defendants who successfully appealed to the District Court whose decision was confirmed by the High Court.
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A The High Court, however, granted the appellant `liberty to pursue her claim' either in the District Court or the High Court. This liberty was not exercised.
The respondent, who was given the house on plot Nos. 17 and 19 instituted a suit in the Court of B Resident Magistrate at Bukoba seeking, inter alia, to evict the appellant and her daughter from the suit premises. The trial court granted vacant possession to the respondent. The appellant's appeal to the High Court failed. On a further appeal to the Court of Appeal of Tanzania the Court upheld the decision of the High Court. In addition the Court considered when a court becomes functus officio C and the question of jurisdiction of primary courts in administration of registered land.
Held: (i) As a general rule, a primary court, like all other courts, has no jurisdiction to overturn or set aside its own decisions as it becomes functus officio after making its decisions;

(ii) The only exception to this general rule includes the setting aside of ex parte decisions and D reviews of decisions induced by fraud or misinformation;

(iii) While section 15(1)(c) of the Magistrates Courts Act 1963 (now s. 19 of the Magistrates' Courts Act 1984) did not specify the particulars relating to the administration of estates, the order of the Chief Justice published as Government Notice No. 320 of 1964 conferred E jurisdiction on primary courts in matters of administration of estates regardless of whether the subject-matter is land registered under the Land Registration Ordinance, provided the applicable law is customary or Islamic law, other than matters falling under the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance.

Case Information

F Appeal dismissed in its entirety.

Cases referred to:

1. Julitha Mwaisunga (PC) Civil Appeal No. 38 of 1978 (unreported).
2. Scolastica B. Katanyebile (P.C.) Civil Appeal No. 11 of 1976 (unreported).

G 3. Munugwa Lutalamila and Two others v. Martha Lutalamila [1982] TLR 98.

G.M. Fimbo, for the appellant.

Rweyemamu, for the respondent.

[zJDz]Judgment

H Nyalali, C.J., delivered the following considered judgment of the court:

This case has a long and chequered history. It commenced in the Urban Primary Court of Bukoba as Civil Case No 36 of 1972 in which the present appellant, namely Scolastica Benedict Katanyabile, I challenged the administration of the estate of her deceased husband, particularly in respect of a house on plot Nos 17 and 19

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Block "D" in Bukoba township. The defendants in that case, namely Rose Benedict (the first wife of A the deceased), Donation Emmanuel and Dionizi Ngilileha (administrators of the deceased's estate) resisted the legal action on the ground, inter alia, that the primary court has no jurisdiction on the subject matter. The primary court overruled the defendants but they successfully appealed to the B District Court at Bukoba in Civil Appeal No 7 of 1974. This decision was confirmed by the High Court at Mwanza in a further appeal by the present appellant in (PC) Civil Appeal No 117 of 1976. The High Court, Lugakingira J, however granted the appellant `liberty to pursue her claim' either in the District Court or the High Court. C

Thereafter civil case No 12 of 1978 was instituted in the High Court at Mwanza but subsequently that court ordered that the case be filed in the subordinate court which had pecuniary jurisdiction over the subject matter of the suit. D

For reasons best known to the appellant, she apparently did not exercise the liberty granted to her by the High Court. Instead, the present respondent, namely Martin Benedict, one of the sons of the deceased, instituted a suit in the Court of the Resident Magistrate at Bukoba in civil case No 90 of 1981 seeking inter alia, to evict the appellant and her daughter (Methodia d/o Benedict) from the suit E premises. The trial court granted vacant possession to the respondent. The

appellant and his daughter were aggrieved by that decision and they appealed to the High Court, in Civil Appeal No 14 of 1985. The High Court at Mwanza, B P Moshi J, dismissed the appeal in its entirety. The appellant, F but not her daughter, was again aggrieved by the decision of the High Court and she sought and obtained leave to appeal to this court. Hence the present appeal in which she is represented by Prof Fimbo, learned Advocate from the Legal Aid Committee of the University of Dar es Salaam. Mr G Rweyemamu, learned Advocate, appears for the respondent.

From the proceedings in this court and the courts below it is apparent that the following matters were established in the courts below. The appellant's husband, one Benedict Katanyebile died intestate in 1971. He was survived by two wives, and a number of sons and daughters. The appellant was his H second wife, whereas one Rose Benedict was his first wife. The deceased husband had nine children from his first wife, one of them being the respondent in the present case. On the other hand, the appellant bore him only a daughter, that is, Methodia d/o Benedict, who was a party to this case in the two courts below. I

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NYALALI CJ

A Furthermore, the deceased left to his heirs substantial property, including motor vehicles, farmland, cattle and houses. One of these houses is the subject of this case, and it is on plot Nos 17 and 19 Block "D" in Bukoba township. Its title is registered under the Land Registration Ordinance. The deceased's property was administered by two out of three administrators appointed by the B Urban primary court at Bukoba to administer the deceased estate. In discharging their functions, the two administrators distributed the property and the interests therein to the heirs in accordance with the guidance of the clan council, acting under Haya Customary Law. All the children of the deceased, C including the appellant's daughter, got their inheritance. The respondent was given, among other things, the house which is the subject of this case. This appellant's daughter was given, among other things, a farmland, including a house in need of some repair, at Kanoni Shamba. None of the widows D of the deceased inherited any property of the deceased, instead they were required to reside with and be maintained by their respective children according to Haya customary law. The appellant was thus required to reside with and be maintained by her daughter, Methodia d/o Benedict at Kanoni E Shamba. In consequence thereof, the appellant was further required to vacate the house which is the subject of this case, and in which she had been living with her deceased husband. She did not comply with that requirement and instead sought to reopen the matter of administration of the deceased's estate in the urban primary court at Bukoba in civil case No 36 of 1972 as already F mentioned.

The appellant's ground for refusing to hand over the house to the respondent and for appealing to us against the decisions of the two courts below boil down to three basic grounds, that is, firstly, that the G primary court under which the estate of the appellant's husband was administered had no jurisdiction over registered land. Secondly, that the transfer of title to the respondent was null and void, and thirdly and finally that the administrators appointed by the

court erred in depriving the appellant of her matrimonial right of residence in the house of her deceased husband.

H The first point for consideration and decision in the case before us is a procedural one, and it is whether the decision of the Urban Primary Court of Bukoba, in the earlier administration proceedings, can be overturned in subsequent proceedings other than by way of appeal to or revision by a higher court. We think the answer is a double one. The first part of the answer relates to the primary court I itself. As a general rule, a primary court, like all other courts, has no

jurisdiction to overturn or set aside its own decisions as it becomes functus officio, after making its A decisions. That is why the proceedings subsequently instituted in the primary court by the appellant in civil case No 36 of 1972 above mentioned were faulted by both the District Court of Bukoba and the High Court at Mwanza. The only exceptions to this general rule includes the setting aside of B ex-parte decisions, and reviews of decisions induced by fraud or misinformation.

The second part of this answer relates to the courts above the primary court. Under the hierarchical scheme of the Courts' system in this country, a decision of a primary court can be overturned by a C court above in the course of appellate or revisional proceedings or in the rare case of judicial review (where no other remedy is available). The present case originated in the court of the Resident Magistrate as a suit for vacant possession, inter alia. It was not instituted as an appeal against or revision of the decision of the primary court. These proceedings therefore cannot give rise to a D decision overturning that of the primary court. This conclusion should not be treated as a technicality. It is based on the principle that the higher courts are not capricious and that the relationship between the lower and higher courts is orderly and judicious. E

Having come to that conclusion on the first point, we would have found it unnecessary to consider the question of jurisdiction of a primary court in administration of registered land, but for two reasons. Firstly, there is a conflict of views in the High Court on the issue, and secondly, we are satisfied that F our action will not overturn the decision of the primary court.

Unfortunately, this point of jurisdiction of a primary court in administration matters was not specifically considered and decided upon by the two courts in this case. We are grateful however to G Professor Mgongo Fimbo, learned advocate, for citing two precedents of the High Court which are relevant to the point. These are the case of Julitha Mwaisunga (1) and the case of Scolastica B Katanyabile (2). We are aware that there are other cases decided by the High Court in the same H way. These cases are currently the authority for the proposition that a primary court has no jurisdiction in administration cases involving registered land by virtue of the proviso contained in para (A) of s 14(1)(a)(i) of the Magistrates' Courts Act 1963, Cap 537, (now repealed and replaced by the provisions of s 18 of the Magistrates' Courts Act 1984). The contrary proposition was made by Mfalila J in the case of Munugwa Lutalamila and Two Others v Martha Lutalamila (3). Since the I

A present case was decided by the primary court before s 14 was repealed and replaced, and since most of the High Court precedents were decided during that period, it is appropriate to reproduce in full the relevant provisions of the Magistrates' Courts Act 1963, which deal with the jurisdiction, B powers, practice and procedures of primary courts. These are s 14 and s 15.

14(1) A primary court shall have and exercise jurisdiction -

(a) in all proceedings of a civil nature -

C (i) where the law applicable is customary law or Islamic law: Provided that no primary court shall have jurisdiction in any proceedings -

(A) affecting the title to or any interest in land registered under the Land Registration Ordinance; or

D (B) in which Islamic law is applicable by virtue of the provisions of the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance; or

(ii) for the recovery of civil debts, rent or interest due to the Republic, the Government or any municipal, town or district council, under any judgment, written law (unless jurisdiction therein is expressly conferred to a court or courts E other than a primary court), right of occupancy, lease, sub-lease or contract, if the value of the subject matter of the suit does not exceed two thousand shillings, and any proceedings by way of counterclaim and set off therein of the same nature and not exceeding such value;

F (iii) for the recovery of any civil debt arising out of contract, if the value of the subject matter of the suit does not exceed one thousand shillings, and any proceedings by way of counterclaim or set-off therein of the same nature not exceeding such value;

G (b) in all proceedings in respect of which jurisdiction is conferred on a primary court by the First Schedule to this Act;

(c) in all proceedings in respect of which jurisdiction is conferred on a primary court by any other law.

(2) The Chief Justice may, by order published in the Gazette, confer upon a primary court H jurisdiction in the administration of deceased estates where the law applicable to the administration or distribution of, or the succession to, the estate is customary law or, save as provided in ss (1) of this section, Islamic law.

(3) The Minister may, by order published in the Gazette, add to the First Schedule jurisdiction to administer or enforce any provision of any law which a district court has jurisdiction to administer I or enforce (other than any such provisions in respect of

which jurisdiction is conferred on a district court only when held by a civil magistrate), and may A amend or replace the same accordingly.

15(1) The practice and procedure of primary courts shall be regulated and, subject to the provisions of any law for the time being in force, their powers limited - B

(a) in the exercise of their criminal jurisdiction, by the Primary Courts Criminal Procedure Code;

(b) in the exercise of their civil jurisdiction, by the provisions of the Fourth Schedule to this Act, and, where the law applicable is customary law, by customary law insofar as it is not inconsistent with the provisions of the Fourth Schedule; C

(c) in the exercise of their jurisdiction in the administration of estates, by the provisions of the Fifth Schedule to this Act,

(2) Not relevant.

(3) Not relevant.

(4) Not relevant. D

It is clear that when these two sections are closely examined together, they make manifest not only the kinds of jurisdiction vested in primary courts but also, since primary courts, unlike the High Court, have limited jurisdiction, the species of that jurisdiction. From s 15(1) paras (a), (b) and (c), it is E evident that primary courts have three kinds of jurisdiction under the Magistrates' Courts Act, that is, firstly, a criminal jurisdiction, secondly, a civil jurisdiction, and thirdly, a `jurisdiction in the administration of deceased estates'. F

Section 14 on the other hand deals with the species of jurisdiction of the various kinds. Sub-section (1)(a)(i) of that section specifies certain proceedings of a civil nature. It is obvious that these fall within the second kind of jurisdiction manifested by s 15, that is, the Civil Jurisdiction of the primary court. Similarly, ss (1)(a)(ii) of s 14 specifies other matters for the recovery of civil debts, `. . . due to G the Republic, the Government . . .' It is obvious also that these fall within the scope of the second category or kind of jurisdiction of the primary court - that is, the civil jurisdiction. The same applies to the provisions of ss (1)(a)(iii). H

On the other hand, the provisions of s 14(1)(b) specify certain proceedings stated in the First Schedule to the Act. An examination of the contents of the First Schedule reveals matters which fall within the first general kind expressed by s 15 - that is, the criminal jurisdiction of primary courts. It I is apparent that by virtue of the provisions of s 14(1)(c), the Magistrates' Courts Act is not

A meant to state exhaustively all the species of jurisdiction vested in a primary court. Additional jurisdiction can be conferred by other laws as it was done under the Law of Marriage Act 1971.

It is also apparent that the Magistrates' Courts Act 1963 did not specify the particulars of the B jurisdiction provided under s 15(1)(c) - that is, the `jurisdiction in the administration of estates'. However, the Act empowers the Chief Justice to specify such jurisdiction under ss (2) of s 14. By order published in the Gazette as Government Notice No 320 of 1964, the Chief Justice did just that. Under rule 2 of that Order it was stated that:

C Every primary court shall have jurisdiction in the administration of the estate of a deceased person, if -

(a) the deceased, at the time of his death, had a fixed place of abode within the area of jurisdiction of the court; and

D (b) the law applicable to the administration or distribution of, or the succession to, the estate is customary law or Islamic and the estate is not one to which the provisions of the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance apply.

E It is evident from this order of the Chief Justice that all primary courts have been given jurisdiction in matters of administration of estates regardless of whether the subject matter is land registered under the Land Registration Ordinance provided the applicable law is customary law or Islamic law, F other than matters falling under the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance. This latter Ordinance has been extensively amended by the Marriage Act 1971 by removing all provisions relating to marriage and divorce, and retaining only provisions relating to G succession or inheritance of property belonging to non-Christian Asiatics. It follows therefore that, since the deceased estate in the present case is not one that falls within the exception stated under para (b) of the Order concerning non-Christian Asiatics, the urban primary court of Bukoba had jurisdiction to administer the estate in question, unless the Order made by the Chief Justice is ultra vires.

H Prof Fimbo canvassed the view before us that the Order of the Chief Justice is ultra vires to the extent that it confers jurisdiction over matters expressly excluded by the provisions of s 14(1)(a)(i)(A). With due respect to Prof Fimbo, we are satisfied that he is wrong. He seems to have failed to grasp the point that the entire provisions of ss (1)(a) deal only with the ordinary civil jurisdiction of the I primary court and excludes the jurisdiction in

administration of estates which is dealt with under a separate ss (2) of s 14. He also appears to have A failed to notice that the only estates excluded from the powers conferred upon the Chief Justice by ss (2) are those estates which, though subject to Islamic law, are within the provisions of the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance. This is apparent from the B expression used under ss (2) which reads, `where the law applicable . . . is customary law or, save as provided in ss (1) of this section, Islamic law'. The mere fact of registration of an estate under the Land Registration Ordinance does not therefore exclude it from the powers of the Chief Justice. It follows therefore that the Order published as Government Notice No 320 of 1964 is ultra vires and C valid. The position taken by Mfalila J in Manugwa Lutalamila (3) above mentioned is thus correct.

It must be pointed out for the avoidance of doubt that the subsequent extensive amendments to the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance in 1971 did not alter the D position regarding the estates of non-Christian Asiatics governed by Islamic law, since such estates are still expressly excluded by the Chief Justice's order. It must also be mentioned that ss 14 and 15 of the Magistrates' Courts Act 1963 have been replaced by ss 18 and 19 of the Magistrates' Courts E Act 1984, which repealed and replaced the former Act. No major changes were made by the relevant new provisions apart from deleting the proviso which appeared in para (B) of ss (1)(a) of the former Act, and adding another specie of jurisdiction vested in primary

courts - that is jurisdiction `in all F matrimonial proceedings relating to Civil and Christian Marriages'. The effect of these changes are twofold. Firstly, by virtue of the deletion of the proviso above mentioned, matters which formerly fell within the scope of the Marriage, Divorce and Succession (Non-Christian Asiatics) Ordinance ceased to be excluded from the ordinary civil jurisdiction of a primary court. As already pointed out, G this ordinary civil jurisdiction of a primary court, the scope of which was dealt with under para (a) of ss (1) of s 14 of the former Act (and is now dealt with under para (a) of ss (1) of s 18 of the Magistrates' Courts Act 1984) is separate from the special jurisdiction in the administration of H deceased's estates, the scope of which is definable by the Chief Justice, and has in fact been defined under Government Notice No 320 of 1964 mentioned earlier. Secondly, the new Act confers jurisdiction in matrimonial cases concerning civil and Christian marriages only. Other kinds of I marriage, such as Hindu marriages, are thus not covered by the Magistrates'

A Courts Act 1984. One has to look to the Law of Marriage Act 1971 for guidance on Hindu marriages as far as jurisdiction of primary courts is concerned in matrimonial cases.

The next important point for consideration and decision in this case is whether the appellant or the B respondent has a better title to possession of the premises in dispute. This is a crucial point, since in a suit for vacant possession, it is an elementary principle that as between the plaintiff and the defendant, the one who has a better title to possession prevails.

The respondent sued the appellant for vacant possession on the basis of a certificate of title C transferred to him under the Land Registration Ordinance as a consequence of the administration of his late father's estate. The transfer was endorsed in the Land Register. The appellant resisted the suit on the basis of a matrimonial right of residence which she had under Haya customary law. D Which then of these two competing titles is the better one? Section 33 of the Land Registration Ordinance provides, insofar as registered estates are concerned as follows:

33(1) The owner of any estate shall except in case of fraud, hold the same free from all estate E and interests whatsoever, other than -

(a) any encumbrances registered or entered in the land register;

(b) the interest of any person in possession of the land whose interest is not registrable under the provisions of this Ordinance;

F (c) any rights subsisting under any adverse possession or by reason of any law of prescription;

(d) any public rights of way;

(e) any charge on or over land created by the express provisions of any other law, without reference to registration under this Ordinance, to secure any unpaid rates or other moneys;

G (f) any rights conferred on any person under the provisions of the Mining Ordinance, the Mining (Mineral Oils) Ordinance, the Forest Ordinance or the Water Ordinance (other than easements created or saved under the provisions of that Ordinance);

H (g) any security over crop registered under the provisions of the Chattels Transfer Ordinance.

It is apparent that the title of the owner of a registered estate is paramount except in the instances stated under paras (a) to (g) of s 33. It follows therefore that the respondent's title will prevail in this I case unless the appellant's matrimonial right of residence is

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one of the species of rights exempted under paras (a) to (g). It would seem that under the facts of A this case, the appellant's matrimonial right of residence falls under para (b) as an `interest of any person in possession of the land whose interest is not registrable under the provisions of this Ordinance'. This is so because a matrimonial right of residence is not a lease or estate which is B required to be registered under s 8 of the Land Registration Ordinance Cap 334. It follows therefore, that the respondent's title cannot prevail over that of the appellant in this case unless the appellant's matrimonial right of residence had ceased to exist at the time of filing the suit. C Unfortunately for the appellant that is what appears to have happened. The matrimonial right of residence which she claims to have had, ceased to exist by virtue of the decision made by or on authority of the Urban primary court of Bukoba in the course of administering the estate of her late husband. As already mentioned earlier in this judgment, she was deprived of that right and required D to reside with her daughter at Kanoni Shamba. For reasons best known to herself, she did not appeal to the District Court against that decision; instead she sought to reopen the case in the same primary court as civil case No 36 of 1972. That course of action reached a dead end as both the E District Court and the High Court correctly overturned her action on appeal. She was advised by the High Court how to pursue her claim but she chose not to act on that advice. Eventually she found herself being sued by the respondent for vacant possession. Thus the decision of the primary court F remains legally binding and effective by choice of the appellant. Furthermore, we are satisfied that even if the appellant had properly challenged the administration of the estate of her late husband, she would not have succeeded, since her matrimonial right of residence upon death of her husband is G under customary law concomitant with her right to live with her children in a house of her deceased husband. It is so stated under Rule 66A the Customary Law Declaration Order 1963 published as Government Notice No 279 of 1963 and was applied to the Bahaya community by Government H Notice 605 of 1963. That customary rule states in Kiswahili:

Mjane anayo haki ya kumchagua ndugu mmoja wa marehemu na kuishi naye kama mume wake, au anaweza kudai kuishi na watoto wake katika nyumba ya marehemu na atakuwa mmojawapo katika jamaa ya marehemu I

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A The relevant part is italisised by us for purposes of clarity. A free translation into English of that part reads as follows: `Or she may claim her right to reside with her issue in a house of the deceased, and thus become one of the deceased's kinsfolk.' Bearing in mind that under customary law, the residence of the issue of the deceased is determined to a great extent by rules of B inheritance, it follows that a widow who elects to reside

where her issue are entitled to reside by rules of inheritance. In the present case, the appellant's daughter was entitled to reside at Kanoni Shamba and not in the house on plot Nos 17 and 19 Block `D' in Bukoba C township. The appeal before us cannot therefore succeed as it has no legal legs upon which to stand.

We thus dismiss the appeal in its entirety. Since this is a Legal Aid case, we make no order as to costs.

1993 TLR p12

E

[zRPz]ATLANTIC ELECTRIC LTD v MOROGORO REGION COOPERATIVE UNION (1984) LTD 1993 TLR 12 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Ramadhani JA

F CIVIL APPLICATION NO. 26 OF 1990

11 March, 1991

G (From the Ruling of the High Court of Tanzania at Dar es Salaam, Mapigano, J.)

Flynote

Court of Appeal Rules - Notice of Intention to Appeal - Essentials of a Notice of Appeal - Form and Content of a Notice of Appeal - Form D in the First Schedule to the Court of Appeal Rules 1979.

H Civil Practice and Procedure - Appeals to the Court of Appeal - Time in which to appeal and steps necessary to take before instituting appeal - Rule 83 of the Court of Appeal Rules 1979.

Court of Appeal Rules - Right to apply for extension of time to appeal - Whether provisions prescribing period in which necessary steps for instituting appeals should be taken are mandatory - Rules 8 and 83 of the Court of I Appeal Rules 1979.

1993 TLR p13

-Headnote

In a suit before the High Court the Applicant obtained an ex-parte judgment against the Respondent. A The Respondent's application for extension of time in which to apply for review of the ex-parte judgment was dismissed by the High Court. The Respondent then filed a Notice of intention to appeal to the Court of Appeal against that dismissal. More than two months after filing the Notice of Appeal B the Applicant filed this application to strike out the said Notice, advancing three grounds: that the Notice of Appeal was bad in law; that after filing the Notice the Respondent had not taken the necessary steps to prosecute the appeal; and that the Respondent had no serious intention to pursue the appeal.

Held: (i) The provision that a notice of appeal shall be substantially in the Form D in the First C schedule to the Court of Appeal Rules 1979 means that in drawing a notice of appeal the format given in Form D may be disregarded but not the substance of the information listed in it;

(ii) As it did not bear an endorsement signature by the Court Registry showing the date when it was lodged there as provided in r. 15 of the Court of Appeal Rules 1979, the Notice of Appeal was bad in law; D

(iii) Under r. 83 of the Court of Appeal Rules 1979 an appeal should be instituted within 60 days of filing the Notice of Appeal; as to institute an appeal the record of appeal has to be filed, applying for and obtaining a copy of proceedings from the High Court are necessary steps to be taken well in time before the appeal can be instituted; E

(iv) The provision, in r. 8, allowing applications to be made for extensions of time does not mean that the rules prescribing the period in which to institute appeals and providing for the taking of necessary steps for instituting appeals are not mandatory;

(v) By not applying for a copy of proceedings and for leave to appeal, the Respondent omitted to take necessary steps for the prosecution of the intended appeal in time. F

Case Information

Application granted

Cases referred to:

1. Hills v. Stanford [1904] 23 NZLR 1661.
2. Victorian Chamber of Manufacturers v. Commonwealth [1943] 67 CLR 347. G

J.T. Mwaikusa, for the applicant.

E.D. Kisusi, for the respondent. H

[zJDz]Judgment

Ramadhani JA: This is an application to strike out a Notice of Appeal under Rule 52 of the Tanzania Court of Appeal Rules. The applicant is The Atlantic Electrical Limited who was represented by Mr Mwaikusa, learned Advocate, and the respondent is The Morogoro Region Co-operative Union advocated for by Mr Kisusi, learned Counsel. I

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RAMADHANI JA

A The applicant had filed a suit on 1 November 1989 against the respondent in the High Court and obtained an ex-parte judgment as the respondent did not appear. When the applicant was in the process of execution the respondent made an application before the High Court for the extension of time in which to apply for the review of the ex-parte judgment. That application was dismissed by B Mapigano J, as he was then, on 18 September 1990, whereupon the present respondent filed a Notice of Appeal to this Court objecting to that dismissal on 1 October 1990.

This application is to strike out the said notice of appeal. An affidavit supporting the notice of motion C was duly filed cataloguing the grounds for striking out the notice of appeal.

When the application came for hearing on 19 February 1991 Mr Kisusi, for the respondent, made an informal application for the extension of time in which to file an affidavit in reply. He said that he had D been briefed by his client just on 17 February and that he was then bereaved. He said that some of the factual matters contained in the affidavit had been overtaken by events. Mr Mwaikusa objected to that because the notice of motion was served on the respondent since 31 January 1991 and that they had ample time to file an affidavit in reply. He added that Mr Kisusi had appeared three times E before the High Court representing the

respondent in other applications before that Court since 1 February so he could not be heard to say that he was not briefed. Mr Kisusi replied that he had been instructed for matters before the High Court but not for this application.

F On 20 February I gave an order granting the application but I reserved giving my reasons until now. Admittedly the respondent was served in over 14 clear days while Rule 52(1) prescribed at least two clear days. So even if there was actual lateness in giving instructions to the counsel that was squarely the carelessness of the respondent himself and could not be sufficient reason to extend G time. However, as striking out of a notice of appeal is a serious matter and as there were allegations that certain facts were overtaken by events I was inclined to adjourn the hearing and afford the respondent an opportunity to file an affidavit so that the Court would be seized of all facts when H determining the motion. I gave the respondent the order to file the affidavit in reply by 26 February 1991 and the hearing to be on 28 February.

When the Court reconvened to hear the motion Mr Mwaikusa, for the appellant, had a preliminary I objection. He sought to move the Court to strike out the affidavit in reply filed by the respondent.

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RAMADHANI JA

He gave three grounds: First, he said he had been served with a copy of the affidavit that same A morning within the Court premises. Explanations by Mr Kisusi to the effect that attempts to locate him previously were abortive were refuted by Mr Mwaikusa. He said that a copy of the same could have been left with his Secretary at the Faculty of Law which he had given as his address for B service. Second, Mr Mwaikusa said that the order which I gave as to the filing of the affidavit by 26 February was not complied with in that the same was filed on 27 February and no leave had been sought to extend time. Mr Kisusi invoked Rule 8 that leave for extension of time could be applied for even after the affidavit had been filed. Third, Mr Mwaikusa submitted that the signature purported to C be that of one Mr Tayari and appendaged on the affidavit on behalf of the respondent, is so different from other signatures of Mr Tayari in other documents, pertaining to this same dispute, filed in the High Court. He referred the Court to some of these documents. Mr Kisusi first challenged the D competence of Mr Mwaikusa to question the authenticity of signatures. However, Mr Kisusi admitted to the Court that the signature on the affidavit is so much different from the signatures in other Court documents. Mr Mwaikusa submitted that the affidavit in question cannot be said to have been attested to by Mr Tayari and consequently, he argued, there is no affidavit before the Court. E

Grounds numbers two and three are sufficient to dispose of the preliminary objection. The purported affidavit in reply was filed outside the time limit I prescribed in my order. There was no application for leave to extend time. Mr Kisusi only pointed out Rule 8 which permits an application to extend time F before or after the act but he did not so apply. But even if there was such an application I would not have granted it. I allowed to adjourn the hearing to give him time to file the affidavit in the first place by over-stretching my indulgence otherwise there was no merits. Then, as Mr Kisusi conceded, the G signature of the affidavit did not in any aspect resemble the others by Mr Tayari. In fact the signature is not that of Mr Tayari. The

situation to say the least borders forgery. Therefore there was no affidavit at all and that is why I decided to ignore that piece of paper and to proceed with hearing the motion but reserving giving my reason to the present. H

Three grounds have been advanced for the application to strike out the notice of appeal.

The first ground was that the notice of appeal is bad in law. Mr Mwaikusa had pointed out four defects. One, it did not conform with Form D of the First Schedule of the Tanzania Court of Appeal I

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A Rules 1979. Two, the notice of appeal was a mere letter addressed to the Registrar of the High Court. Three, there was no citation of the rule or rules under which it was made. Four, there was no indication of where or when it was lodged and, according to Mr Mwaikusa, this was the most serious flaw.

B Mr Kisusi said that the notice of appeal was not bad in law. He submitted that Rule 76(6) merely provides that a notice of appeal is to be `substantially in the Form D'. He argued that three is no requirement that a notice of appeal is to be as Form D. He said that the notice of appeal had been addressed to the Registrar of the High Court as required by rule 76(1). He pointed out that the names C of the parties had been given, a description of the suit at the High Court had been provided and so was the date of the decision complained of. He admitted that there were a few omissions like not mentioning the Court of Appeal as is done in Form D. Also the date the notice of appeal was received D is missing but he produced a G.R.R. No. 214726 for Shs 800/=, the fee required for lodging a notice of appeal, which was issued on 1 October 1990 as evidence of when it was lodged.

The second ground for striking out the notice of appeal was that since it was lodged necessary steps E had not been taken to prosecute it. He mentioned the necessary steps to be two. One, copies of the proceedings had not been applied for as required under Rule 83 while more than thirty days had elapsed. Two, no application had been made for leave to appeal under Rule 76(5). He said that that could be made either before or after the notice of appeal and that there was no need to extract the F decree.

Mr Kisusi's reply was that it was not mandatory to apply for the records of the proceedings within thirty days. He said that a party would observe that only if he wanted to avail himself of the benefits G under Rule 83. These are, he said, the exclusion of the period taken to prepare the records when computing the sixty days prescribed for instituting an appeal. Mr Kisusi submitted that failure to institute an appeal could be cured by an application for leave to extend time under Rule 8 therefore a H party was not obliged to apply for a copy of proceedings within thirty days.

The third ground advanced by Mr Mwaikusa was that the respondent had not manifested any serious intention to pursue the appeal and that the notice of appeal was merely used to frustrate the execution of the decree of the High Court which was in favour of the applicant. He submitted that I finances could not have been a problem as Court fees could have been exempted under Rule 122

upon proof of sufficient cause and even Court records could have been prepared by the High Court. A So Mr Mwaikusa prayed for the striking out of the notice of appeal with costs. He also submitted that costs for the delay in the execution of the decree could be covered if interest at the bank rate is ordered.

Mr Kisusi submitted that certain steps had been taken. However, the elaboration of those steps was B objected to my Mr Mwaikusa on the grounds that there was no affidavit in reply and that the counsel could not adduce evidence. It was agreed that the Court could take judicial notice of the records of the High Court. Mr Kisusi said that it was superfluous to apply for the extension of time C before leave to appeal was granted. Hence he argued that the notice of motion was premature for it could not be said that the respondent could not proceed with the intended appeal. He also said that the disbursement of the decretal amount was not prevented by the respondent but that the order of 10 August 1990 by Mapigano J lifted the Garnishee Order and so the moneys were held by the High D Court pending further orders by the same Court.

Mr Mwaikusa replied that until then no leave to appeal had been granted by the High Court and also there was no application for extension of time made before this Court. He also submitted that the E order of Mapigano J on 10 August 1990 was a temporary one while the final order was that of 18 September 1990 against which the respondent had filed the notice of appeal in question. Mr Mwaikusa said that every time the appellant asked for execution they were reminded of the pending notice of appeal. F

Let me start with whether or not the Notice of Appeal is bad in law. Rule 76(6) provides as follows -

> `A notice of appeal shall be substantially in the Form D in the First Schedule to these Rules and shall be signed by or on behalf of the appellant.' (Emphasis provided.) G

On the outset that sub-rule uses the word `shall' in saying `a notice of appeal shall be' and so it is mandatory: the notice of appeal must be substantially in the Form D. The only question is what is to be substantially in the Form D. Mr Kisusi merely said that there was no requirement that a notice of H appeal was to be as Form D. Mr Mwaikusa responded to that by saying that the phrase meant functionally sufficient to perform the purposes intended.

The phrase `substantially in Form D' has not in my knowledge, been defined in any decision of this Court. My research has also failed to produce any authority on the issue and none has been cited I

A to me either of the learned counsel. So I am somewhat on new ground.

The word `substantially' is the adjective of `substance'. The provision could be rephrased `a notice of appeal shall be as Form D in substance . . .' Now what does that mean?

B The word `substance' is defined in Chamber's Dictionary thus:

> `that in which qualities or attributes exist; the existence to which qualities belong; that which constitutes anything what it is; the principal part; gist; subject matter . . .'

C According to Stout CJ in the New Zealand case of Hills v Stanford (1) at 1065.

`The word "substance" is a philosophical term with a long history, and according to philosophical terminology it D means "that which requires for its existence the existence of nothing else". It is the "substrate", the "essence", the "thing in itself". It has to be thought of or inferred apart from its accidents . . .'

From the foregoing exposition then we have first to determine the substance of Form D. What E makes Form D not Forms A, B or C or whatever other forms prescribed by the Rules. What is the essence, the content of Form D. After determining that then we have to see whether or not the notice F of appeal in dispute is substantially in Form D.

Of essence there are ten pieces of information required to be given in Form D to wit:

(1) The matter is to be dealt with in the Court of Appeal of Tanzania at a named centre.

(2) The name of parties.

G (3) The number of the case complained against.

(4) The name of the judge whose decision is the subject matter of the appeal.

(5) An indication of whether the appeal is against the whole decision or just a certain specified part of the decision.

H (6) The address for service for the appellant.

(7) To whom copies of the notice of appeal is intended to be served.

(8) Date of the notice of appeal.

(9) Signature of the appellant or his advocate.

I (10) The High Court Registry to which the notice of appeal is addressed.

(11) The date on which the notice of appeal was lodged. A

(12) The signature of the Registrar.

Before analysing the notice of appeal in dispute it is proper, at this juncture, to make one point very clear. Mr Mwaikusa complained that the notice of appeal was like a letter. That is very true. There is B even `Dear Sir' written. But our concern is the substance, the content and not the form. Thus it was said in Victorian Chamber of Manufacturers v Commonwealth (2) at 377:

`The words "in substance" indicate that in making the necessary comparison form should be disregarded.' C

So it is not the format of Form D that is material but the content of Form D.

Going through the disputed notice of appeal I find three of the twelve matters enumerated above D missing. At the outset there is no indication that the matter is to be before the Court of Appeal. However, that has been indicated in the body of the notice of appeal where the words of Form D have been used `. . . intends to appeal to the Court of Appeal of Tanzania . . .' So that cannot be said E to have been really offended. Then the date when the notice of appeal was lodged is not shown and lastly there is no signature of the Registrar. Mr Kisusi produced the receipt and claimed that it was issued the day the notice of appeal was lodged. That could be said

to supplement the notice of F appeal. But it would seem that it will not suffice. Rule 15 is offended since it provides that:

`Whenever any document is lodged in the Registry or in a sub-registry or in the registry of the High Court under or in accordance with these Rules, the Registrar or deputy registrar or the Registrar of the High Court, as the case may G be, shall forthwith cause it to be endorsed, showing the date and time when it was lodged.'

To that extent it is my well considered opinion that the said notice of appeal is bad in law.

The second ground advanced for the striking out of the notice was that no necessary steps had been H taken. These were mentioned to have been applications for a copy of proceedings and for leave to appeal.

As for the copy of proceedings Mr Kisusi submitted that it was not mandatory to apply for them within thirty days unless a party wanted to avail himself with the advantage of excluding the time used in the preparation of the records from the sixty days limitation I

A provided under Rule 83. He relied on Rule 8 to apply for extention of time.

With all due respect to the learned Counsel that argument is odd to say the least. Under Rule 83 the appeal was required to be instituted within sixty days of filing the notice of appeal. Thus if the notice B of appeal was filed on 1 October 1990, as claimed, then the institution should have been by or on 1 December 1990. But in order to institute the appeal the record of appeal had to be filed; that is, they must have been obtained. This presupposes that they had already been applied for. Now none of these steps had been taken when this motion to have the notice of appeal struck out was filed on 22 C December 1990. This is nineteen days after the date the appeal ought to have been instituted. The counsel cannot be heard to say that the application for a copy of proceedings was not required to be made within thirty days.

D Admittedly Rule 8 provides for the application to extend the time prescribed for anything in the Rules. But that is very different from submitting that the Rules are not mandatory otherwise there should not have been the reason to have Rule 82 which provides for application to strike out a notice of appeal because an essential step in the proceedings had not been taken within the prescribed E time. Moreover, the extension of time under Rule 8 is at the discretion of the Court and upon proof of sufficient reason for the delay. It is not proforma.

F The same reasons given above apply to an application for leave to appeal because an order giving leave to appeal is part and parcel of the record of appeal which is required to be filed within sixty days in order to institute the appeal.

The third and last ground was that no intention to pursue the appeal had been manifested by the G respondent and that the notice of appeal had been used just to frustrate execution. Mr Mwaikusa conceded that a notice of appeal, and indeed an appeal itself, did not operate to stay execution but submitted that the amount involved was so big that prudence dictated hesitation to execute the decree pending the finalization of the appeal.

H Mr Kisusi started to enumerate steps taken but that was objected to by Mr Mwaikusa as being giving evidence. I ruled out that such information as obtainable in Court records could be

taken judicial notice of. On a perusal of the High Court file civil case No 276/89 between the parties, I have I found that there is an application for the extension of time of leave to appeal to the Court of Appeal against the ruling of Mapigano J given on 18 September 1990. This applica-
1993 TLR p21
RAMADHANI JA
tion was lodged on 19 January 1991. However, I am also cognizant of the fact that the motion to A strike out the notice of appeal had been filed on 22 December 1990 that is about 28 days before the application for extension of time was filed. Could knowledge that there was such a motion before the Court prompted the application for the extension of time? B
Besides that that application for the extension of time is just the first step of a number of steps. Assuming that it be granted then the present respondent will have to apply for leave. Assuming that to be granted he will have then to apply for the extension of time to institute the appeal. This is in fact C a postponement indefinitely of the execution of the decree.
This is a motion under Rule 82 to strike out the notice of appeal. As I have been satisfied that the notice of appeal is bad in law I am inclined to grant the motion. I am equally granting the motion since essential steps in the proceedings hence not been taken within prescribed time as explained above. D In any case Rule 84(a) provides:

`84. If a party who has lodged a notice of appeal fails to institute an appeal within the appointed time -

(a) he shall be deemed to have withdrawn his notice of appeal and shall, unless the Court orders otherwise, be liable to pay the costs of any persons on whom the notice of appeal was served arising from the failure to E institute the appeal;'

The respondent in this motion is such a party. Even if there was not this motion he would have been deemed to have withdrawn his notice of appeal. F
Therefore the motion is granted for the reasons given above. The purported notice of appeal is struck out with costs to the applicant. G
1993 TLR p22
A
[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v DAUDI PETE 1993 TLR 22 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Nyalali CJ, Makame JJA and Ramadhani JJA

B CRIMINAL APPEAL NO. 28 OF 1990
16 May, 1991
C (From the Ruling of the High Court of Tanzania at Mwanza, Mwalusanya, J.)
Flynote
Constitutional Law - Basic rights enshrined in the Constitution - Procedure and jurisdiction of the High Court in D enforcing basic rights and freedoms - Articles 30(3) and (4) and 108(1) and (2) of the Constitution.

Constitutional Law - Constitutional Bill of Rights and its interpretation - Use of the African Charter on Human and People's Rights in interpreting the Bill of Rights.

E Bill of Rights and Freedoms - The Right to personal liberty - The right to bail and circumstances and procedure for denying bail to an accused person - Section 148(5)(e) of the Criminal Procedure Act 1985 and article 15(2)(a) of the Constitution.

Criminal Practice and Procedure - Bail - Denial of bail in criminal trials: Whether violative of the constitutional F presumption of innocence - Section 148(5)(e) of the Criminal Procedure Act 1985 and article 13(6)(b) of the Constitution.

Constitutional Law - Bill of Rights and Criminal Practice and Procedure - The Right to Equality before the law: Whether violated by denial of bail - Section 148(5)(e) of the Criminal Procedure Act 1985 and article 13(4) and (5) G of the Constitution.

Constitutional Law - Doctrine of Separation of Powers - Statutory provisions prohibiting the grant of bail - Whether they violate the doctrine of separation of powers.

H Bill of Rights - Derogation clauses in the Bill of Rights - Circumstances in which statutory provisions violating basic rights and freedoms may be saved by derogation clauses - Section 148(5)(e) of the Criminal Procedure Act 1985 and article 30 of the Constitution.

-Headnote

The Respondent was charged with robbery with violence before the District Court. His application for bail pending trial was dismissed on grounds that s 148(5)(e) of the Criminal Procedure Act 1985 I (herein-

after `the Act') provided that the offence he was charged with was not bailable. He subsequently A applied to the High Court for bail. The High Court held that the provisions of s 148(4) and (5) of the Act, which prohibited the granting of bail in certain circumstances, violated several provisions of the Constitution concerning basic rights and freedoms, and the doctrine of separation of powers, and were therefore null and void. The High Court therefore granted bail. The Director of Public B Prosecutions appealed to the Court of Appeal.

Held: (i) Issues of constitutionality of the provisions of s 148 of the Act were raised by both sides to the case before the trial court; the trial judge, therefore, was right to frame and deal with issues relating to the constitutionality of s 148 of the Act; C

(ii) The Constitution confers upon the High Court original jurisdiction to entertain proceedings in respect of actual or threatened violations of the basic rights and freedoms and, until Parliament enacts the procedure for the enforcement of those rights and freedoms, the same may be enforced using the procedure available in the High Court in the exercise of its original jurisdiction; D

(iii) As the parties before the trial court had raised issues relating only to the provisions of paragraph (e) of ss (5) of s 148 of the Act, the trial judge was wrong to frame issues covering the whole of ss (4) and (5) of s 148 of the Act;

(iv) As the Constitution of the United Republic of Tanzania is established in the Kiswahili E language, the controlling version in interpreting the Constitution is the Kiswahili and not the English version;

(v) The Constitution of the United Republic of Tanzania recognizes and guarantees not only basic human rights but also basic human duties, consistent with the African Charter on Human and People's Rights; as the Bill of Rights and Duties was introduced into the F Constitution shortly after Tanzania signed and ratified the Charter, account must be taken of that Charter in interpreting the Bill of Rights and Duties;

(vi) On account of the co-existence of the individual and society and their respective rights and duties, the rights and duties of the individual are limited by the rights and duties of society, and vice versa; G

(vii) Under article 15(2)(a) of the Constitution a person may be denied or deprived of personal liberty under `certain circumstances' and subject to a `procedure prescribed by law', but s 148(5)(e) of the Act does not contain the requisite prescribed procedure for denying bail to an accused person; section 148(5)(e) of the Act therefore violates article 15(2) of the H Constitution;

(viii) Section 148(5)(e) does not violate article 13(6)(b) of the Constitution, which prohibits treating an accused person like a convicted criminal, because denying bail to an accused person does not necessarily amount to treating such a person like a convicted criminal;

(ix) Persons denied bail under the provisions of s 148(5)(e) of the Act are so denied on the I basis of their actions or conduct and therefore those

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A provisions do not violate article 13(4) and (5) of the Constitution which prohibit discrimination;

(x) Statutory provisions prohibiting the grant of bail to persons charged with specified offences, like the provisions of s 148 of the Act, do not amount to a take over of judicial functions by the legislature; such provisions, therefore, do not violate the doctrine of separation of B powers;

(xi) The provisions of s 148(5)(e) of the Act violate article 15(2)(a) of the Constitution and would, therefore, be null and void, unless saved by article 30 of the Constitution because any piece of legislation falling wholly within the parameters of article 30 of the Constitution is valid, C notwithstanding that it may be violative of basic rights of the individual;

(xii) Section 148(5)(e) would accordingly be valid if its denial of bail aimed only at accused persons capable of being a danger or threat to the interests of defence, public safety or public order but now, as it is so broad as to cover even persons who are no danger at all to the interests of defence, public safety or public order, it does not fit into article 30 of the D Constitution and is therefore null and void;

(xiii) Courts have discretion to grant bail to persons accused of offences specified under s 148(5)(e) of the Act, which discretion should be exercised judicially taking into account the interests of both the individual and the community.

Case Information

E Appeal dismissed.

Cases referred to:

1. Maneka Gandhi v. Union of India [1978] 2 SCR 621.

2. Republic v. Peregrin Mrope HC Misc. Criminal Cause No. 43 of 1989 (unreported).

F 3. Clarke v. Karika [1985] LRC (Const.) 732.

4. Lindsley v. Natural Carbonic Gas Co. [1911] 220 US 61.

5. Megowan v. Maryland [1961] 366 US 420.

6. Bull v. Minister of Home Affairs [1986] (1) ZLR 202.

7. Attorney General of the Gambia v. Momedou Jobe [1984] AC 689 (PC).

G K.S. Massaba, for the appellant.

G.M. Fimbo, as Amicus Curiae.

[zJDz]Judgment

H Nyalali, C.J., delivered the following considered judgment of the court:

This appeal by the Director of Public Prosecutions, hereinafter called the DPP, is one of three constitutional cases that have reached this Court ever since Fundamental Rights and Duties I embodied in the Constitution of the United Republic in 1984 became enforceable in March 1988 by virtue of the provisions of s 5(2) of

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the Constitution (Consequential, Transitional and Temporary Provisions) Act 16 of 1984. This case A however is the first to be decided by the Court. It concerns the right to bail.

The respondent, one Daudi s/o Pete was charged in the District Court of Musoma District at Musoma with the offence of robbery with violence c/s 285 and 286 of the Penal Code. He was denied B bail and remanded into custody on the basis that the offence for which he stood charged was not bailable by virtue of the provisions of s 148(5)(e) of the Criminal Procedure Act 9 of 1985. The Respondent was aggrieved by that decision, and he applied to the High Court at Mwanza for bail. The High Court, Mwalusanya J, hold that the provisions of s 148(4) and (5) of the Act, which prohibited the C granting of bail in certain cases were unconstitutional and therefore null and void. Mwalusanya J held that these provisions were violative of several articles of the Constitution of the United Republic of Tanzania, which concern Basic Rights; and the Doctrine of Separation of Powers between the D Judicature and the Legislature. The High Court therefore granted bail. The DPP was aggrieved by the decision of the High Court, hence this appeal to this Court.

While this appeal was pending before us, the trial in the District Court proceeded and the respondent E was acquitted. Apparently and understandably because of this acquittal, the respondent lost interest in the D.P.P.'s appeal. He did not enter appearance before us in spite of our order made under rule 3(2)(a) of the Rules of the Court for Notice of Hearing to be served upon him by publication in local newspapers. We are indebted however to Professor Mgongo Fimbo, learned Advocate, who F agreed to act as amicus curiae so as to assist the Court to see the other side of the coin of this case. We are also grateful to Mr K S Massaba, learned Principal State Attorney, assisted by Mr Matupa, learned State Attorney, who very ably represented the D.P.P. in this appeal. G

The D.P.P. submitted a total of five grounds of appeal, two of which are contained in a Supplementary Memorandum of Appeal filed on 19 June 1990. The main Memorandum of Appeal has three grounds. The two supplementary grounds of appeal read as follows: H

`1. That the learned Judge seriously misdirected himself in framing for consideration, the issues relating to the constitutionality of the prohibition of bail under s 148 of the Criminal Procedure Act.

2. That the learned Judge seriously erred in considering the constitutionality of s 148 of the Criminal Procedure I Act, as

A a whole while the issue concerned only para (e) of ss 5 of the said section.'

The three main grounds of appeal read as follows:

`1. That the honourable Judge erred in law in holding that by applying normal canons of interpretation, a B meaning cannot be attached to s 148(5)(e) of the CPA that fits within the provisions of articles 30 and 31 of the Union Constitution.

2. That the honourable Judge's interpretation of s 148(5)(e) of the CPA in the light of art 13(6) of the Union C Constitution is bad in law as `hearing' envisaged by the Parliamentarians in the aid article is not the same as `hearing' when the case is before the court for applications such as those of bail under s 148(5)(e) of the CPA.

3. That the Honourable Judge applied wrong canon of statutory interpretation hence his failure to interpret s D 148(5)(e) of the CPA in the light of societal interests vis-à-vis those of a private citizen.'

In his submissions before us regarding the first supplementary ground, Mr Massaba argued in effect E that there was nothing in the pleadings or the submissions in the course of the proceedings in the High Court which could give rise to the issues of constitutionality of the prohibition of bail under s 148 of the Criminal Procedure Act. Professor Fimbo on the other hand argued the contrary view. Having F examined the record of the proceedings of the court below, and bearing in mind that the respondent was a layman, we are satisfied that any reasonable tribunal would find that paras 5 and 6 of the affidavit filed in support of the bail application, together with the respondent's oral submissions made in support of his application, undoubtedly give rise to the issues of constitutionality of the prohibition G of bail. Paragraphs 5 and 6 of the affidavit state as follows:

`5. My Lord, I agree that s 148(5) CPA prevents the court to grant bail, but in my case the charge was prepared to suit the conditions of s 148(5) and it is not true that a gun was used to take only one cattle while there are H many cattle in the kraal of Mr Maregeri or Issa Magoma.

6. My Lord this honourable Court has power to consider and administer justice so that a person cannot be mistreated by the existing law or otherwise. Mr Maregeri, Issa Magoma and the police have conspired to I detain the applicant by means of law without even a reasonable evidence.'

Mr Massaba's argument that the respondent in these paragraphs is complaining only of victimization A by the Police and Mr Maregeri cannot be sustained in the light of what is stated in the first sentence of para 6. The respondent's assertion that the High Court has `power to consider and administer justice so that a person cannot be mistreated by the existing law or otherwise' read together with the B respondent's reference to the provisions of s 148(5) of the Criminal Procedure Act, clearly shows beyond doubt that the respondent was challenging the constitutionality of the provisions of s 148(5) which prohibit bail.

The relevant parts of the respondent's submissions as recorded in the High Court reads as follows: C

`The law should not be used to victimize citizens. Mr Maregeri and the OCD are using the law as an instrument of oppression. This offence is purely out of vindictiveness. I am wondering as to whether such cause of action is D constitutional. I understand that our Bill of Rights has come into operation. What of it? I thought that we oppressed citizens would be saved by it. If s 148(5) of the CPA condones denying liberty to a citizen for more vindictiveness then I am afraid the Bill of Rights is not worth the paper it is written on.' E

We think no stronger words could have been used to raise the constitutional issues than these. In his submission in reply Mr Muna, learned State Attorney, who represented the Republic of the High Court, is recorded to have said, inter alia, F

`The question of Bill of Rights under arts 13(2) and 15(2) of the Constitution would seem to give the right to liberty to the citizen. But that right has lawfully been curtailed by Parliament.

It is my submission that s 148 is constitutional which does not go against arts 13(2) and 15(2) of the constitution. I G rely on arts 30 and 31. These are saving the said provisions of s 148 of the CPA. So the law of bail in s 148 is lawful for public interest and on national security grounds.'

In response to the submissions of Mr Muna, the respondent concluded by saying H

`I wish only to add that, if Parliament condones such things as vindictiveness, then I am afraid that, we the down-trodden have no where to run to for our liberty. Parliament cannot have unlimited powers to pass oppressive laws as this one which the State Attorney is keeping defending. It was not the intention of the Legislature to I

A pass laws to oppress Wananchi. That cannot be true in a democratic state like Tanzania.'

There can be no doubt in the mind of any reasonable tribunal that these parts of the submissions B made by both sides of the case in the High Court raised issued of constitutionality of the provisions of s 148 of the Criminal Procedure Act. It follows therefore that the learned trial judge was correct in framing issues relating to the Constitutionality of s 148 and we so find.

C Mr Massaba also made submissions concerning the jurisdiction and procedure of the High Court in the enforcement of the Basic Rights, Freedoms and Duties enshrined in the Constitution, in view of what the trial judge had said on that point. In his ruling, Mwalusanya J stated inter alia:

D `A point in limine to be taken is as to whether the Bill of rights may be enforced when the procedure and rules for conducting such cases by the court are yet to be enacted by the Government as provided in art 30(4) of the Constitution. Counsel for the Republic did not address me on this point.

E My view is stated in the case of Marwa Wambura Magori v AC (in) High Court Misc Criminal Cause No 2/1988, and wish to reiterate here that it is not necessary to have such rules in order to enforce the Bill of Rights. The enforcement may be done by application in the form of Habeas Corpus, Mandamus, Prohibition, Cortiorari, Declarations and even by an application for bail as the case at hand.'

F Both Mr Massaba and Professor Fimbo agree with this view of the learned Trial Judge on this point. Professor Fimbo further informed us that the jurisdiction of the High Court is derived from three sources, two of which exist under arts 30(3), (4) and 108(1) and (2) of the Constitution, and the third G under s 5(2) of the Constitution (Consequential, Transitional and Temporary Provisions) Act 16 of 1984. According to the official English translation of the Swahili version of the Constitution.

Article 30(3) and (4) reads as follows:

H `30(3) where any person alleges that any provision of this part of this chapter or any law involving a basic right or duty has been, is being or is likely to be contravened in relation to him in any part of the United Republic, he may without prejudice to any other action or remedy lawfully available to him in respect of the same matter, institute proceedings for relief to the High Court.

I (4) Subject to the other provisions of this Constitution, the

High Court shall have and may exercise original jurisdiction to hear and determine any matter brought before it in A pursuance of this section; and an Act of Parliament may make provisions with respect to -

(a) the procedure regulating the institution of proceedings under this section;

(b) the powers, practice and procedure of the High Court in relation to the hearing of proceedings instituted B under this section;

(c) ensuring the more efficient exercise of the powers to the High Court, the protection and enforcement of the basic rights, freedoms and duties in accordance with this Constitution.' C

We concur with the learned Trial Judge that the provisions of sub-arts (3) and (4) of art 30 sufficiently confer original jurisdiction upon the High Court to entertain proceedings in respect of actual or threatened violations of the Basic Rights, Freedoms and Duties. We also concur that until the D Parliament legislates under sub-art (4) the enforcement of the Basic Rights, Freedoms and Duties may be effected under the procedure and practice that is available to the High Court in the exercise of its original jurisdiction, depending on the nature of the remedy sought. E

As to the provisions of article 108(1) and (2), it is provided therein as follows:

`108(1) There shall be a High Court of the United Republic (referred to as the "High Court") which shall have the jurisdiction and powers conferred on it by this Constitution or by any other legislation. F

(2) Where it is not expressly stated in this Constitution or in any other legislation that any specific matter shall first be heard and determined by certain court, the High Court shall have jurisdiction to hear and determine that matter. In addition the High Court shall have jurisdiction in respect of any other matter which in accordance with legal G traditions and conventional practices obtaining is ordinarily to be heard and determined by the High Court. Save that, the provisions of this section shall apply subject to the jurisdiction of the Court of Appeal of Tanzania as provided for in this Constitution or in any other legislation.' H

We agree with Prof Fimbo that under the above cited provisions, the High Court has unlimited inherent original jurisdiction to adjudicate upon any legal matter unless there is express statutory provision to the contrary. However, we concur with Mr Massaba that since there is a specific I provision under the Constitution, that

A is, article 30(3) and (4) concerning the enforcement of the Basic Rights, Freedoms and duties in question, any proceedings for that purpose must be instituted under that specific article of the Constitution.

B With regard to the provisions of s 5(2) of the Constitution (Consequential, Transitional and Temporary Provisions Act 1984, it is states therein that:

`5(2) Notwithstanding the amendment of the Constitution and, in particular, the justiciability of the provisions relating to basic rights, freedoms and duties, no existing law or any provision in any existing law may, until after three years C from the date of the commencement of the Act, be construed by any court in the United Republic as being unconstitutional or otherwise inconsistent with any provision of the Constitution.'

D On a proper construction of the above cited provisions, we are, with due respect to Prof Fimbo, unable to accept his learned advice to the effect that the provisions in question create or confer jurisdiction on the High Court to adjudicate upon the constitutionality of any law of the land. It is apparent in our view that these provisions deal with the consequences of introducing a justiciable Bill E of Rights and Duties into the Constitution, by providing for a transitional period of grace of three years when the Government could put its own house in order, so to speak, by making appropriate amendments to existing law. That this is so is borne out by the next sub-provision (3) of s 5 which F reads:

`(3) The President may, at any time before 30 June 1985, by order published in the Gazette, make amendments to any existing law as may appear to him to be necessary or expedient for bringing that law into conformity with the G provisions of the Act and the Constitution or for giving effect, or enabling effect to be given to these provisions, and where the President makes an order under this section in relation to any law which is applicable to Zanzibar as well as to Mainland Tanzania, that order shall have effect so as to amend that law in relation to any person or matter connected with Zanzibar as well as with Mainland Tanzania in

respect of any matter within the legislative H competency of the Parliament of the United Republic, notwithstanding any provision to the contrary in the interpretation of Laws and General Clauses Act, 1972.'

Let us now turn to the second supplementary ground of appeal. Mr Massaba has submitted in effect, I in the alternative to the first

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supplementary ground, that the only issue raised in the High Court concerned the constitutionality of A the provisions of para (c) of ss (5) of s 148 of the Criminal Procedure Act, and that the learned Trial Judge was therefore wrong in framing issues to cover the whole of s 148. Professor Fimbo on the other hand has advised us to the effect that the learned Trial Judge was correct in framing issues covering the whole of s 148 since para (c) of ss (5) is inseparable from the other provisions of s 148. B

With due respect to both Counsel, we think there is a common misdirection on their part concerning what the learned Trial Judge actually did. There is nothing on the record of the proceedings in the C High Court to suggest that the issues were framed on the whole of s 148. What is self-evident is that issues were framed on only two sub-sections of s 148. In a part of his ruling, the learned Trial Judge states:

`Before the application was heard I informed the State Attorney Mr Muna, that the application raised matters of great D public and Constitutional importance, as this court had to decide as to the Constitutionality of these provisions which restrict courts of law to grant bail to accused persons. And so the State Attorney was afforded opportunity to prepare himself and was given by me a list of the issues that needed to be examined closely. The issues framed E involved the whole of ss (4) and (5) of s 148 of the CPA. . . .'

From the record of the proceedings in the High Court, it is obvious that only the provisions of para (e) of ss (5) of s 148 were in issue between the parties. Was the learned Trial Judge correct in framing F issues to include the provisions of ss (4)?

Were these provisions, as Prof Fimbo advises, inseparable from para (e) of ss (5) which was in issue?

Let us have a close look at these provisions as amended by Act 12 of 1987 and Act 10 of 1989: G

`(4) Notwithstanding anything in this section contained, no police officer or court shall, after a person is arrested and while he is awaiting trial or appeal, admit that person to bail if the Director of Public Prosecutions certifies in writing H that it is likely that the safety or interests of the Republic would thereby be prejudiced.

(4A) A certificate, issued by the Director of Public Prosecutions under this section shall take effect from the date it is filed in the court, or notified to the officer in charge of a police station, and shall remain in effect until the proceedings concerned are concluded or the Director of Public Prosecution withdraws it. I

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A (5) A police officer in charge of a police station, or a court before whom an accused person is brought or appears, shall not admit that person to bail if -

(a) that person is accused of murder or treason;

(b) it appears that the accused person has previously been sentenced to imprisonment for a term exceeding three years;

B (c) it appears that the accused person has previously been granted bail by a court and failed to comply with the conditions of the bail or absconded;

(d) the accused person is charged with an offence alleged to have been committed while he was released on bail by a court of law;

C (e) the act or any of the acts constituting the offence with which a person is charged consists of a serious assault causing grievous bodily harm on or threat of violence to another person, or having or possessing a firearm or an explosive;

D (f) it appears to the court that it is necessary that the accused person be kept in custody for his own protection;

(g) the offence for which the person is charged involved property whose value exceeds ten million shillings, unless that person pays cash deposit equivalent to half the value of the property, and the rest is secured by E execution of a bond; provided that this shall not apply in the case of police bail.'

It seems to us that the following points are obvious. First, the provisions of ss (4) deal with a situation which is entirely different from that covered by the provisions of ss (5). Second, each of the F paragraphs (a) to (g) concerns a situation which is entirely different from that dealt with in any of the other paragraphs. It follows therefore that the provisions of para (c) or ss (5) are separable from the provisions of paras (a), (b), (c), (d), (f) and (g) of ss (5), and also separable from the provisions of ss (4) of s 148 of the Criminal Procedure Act. We find therefore that the learned Trial Judge was wrong G in framing issues covering the whole of ss (4) and ss (5) of s 148.

Next we turn to the first main ground of appeal. Mr Massaba has submitted to the effect that on a proper and true interpretation of the provisions of para (c) of ss (5) of s 148 of the Criminal H Procedure Act, a meaning can be ascertained which fits into the provisions of article 30(2)(b) of the Constitution, which, according to him, permits the Parliament to enact laws under certain circumstances which are derogative or restrictive of the Basic Rights, Freedoms and Duties of the I human being. It was part of Mr Massaba's submission that the provisions of para (c) of ss (5) of s 148 which

derogate from the basic right to personal liberty guaranteed by article 5 fall within the scope of article A 30(2)(b) of the Constitution, and are therefore constitutionally valid. Without prejudice to this submission, Mr Massaba also submitted to the effect that the provisions of article 15(2) of the Constitution permits the enactment of laws such as para (e) of ss (5) of s 148. B

Professor Fimbo on the other hand has advised us to hold the contrary view regarding article 15 and 30(2) of the Constitution in respect of the provisions of para (e) of ss (5) of s 148 of the Criminal Procedure Act.

Let us first have a close examination of article 15 of the Constitution. But a word of caution first. C Since our Constitution is established in the Kiswahili language, we must constantly bear in mind that the controlling version is the Kiswahili one and not the English version. When that is done, it is immediately noticed that the English version of para (b) of sub-art (2) of article 15 is incorrect insofar D as it includes the words `or upon reasonable suspicion of having committed a criminal offence'. Fortunately for us, the case before us does not involve that part of article 15. We are only concerned with sub-arts (1) and (2) para (a) which state:

`(1) Man's freedom is inviolable and every person is entitled to his personal freedom. E

(2) For the purposes of protecting the right to personal freedom, no person shall be subject to arrest, restriction, detention, exile or deprivation of his liberty in any other manner save in the following cases:

(a) in certain circumstances, and subject to a procedure, prescribed by law; or F

(b) . . . (not applicable).'

Mr Massaba has contended, correctly in our view, that the basic right to persona liberty may be G derogated from or restricted within the scope of the exceptions stated under paras (a) and (b) of article 15. He however goes further and contends that the provisions of para (e) of ss (5) of s 148 of the Criminal Procedure Act, fall squarely within the scope of para (a) above cited. Professor Fimbo has advised us to the contrary. H

In our considered opinion, we think there is a need to bear in mind certain basic concepts, principles and characteristics concerning the Bill of Rights and Duties enshrined in our Constitution, in order to interpret the Constitution and the laws of the land properly. First, the Constitution of the United I Republic recognizes and

A guarantees not only basic human rights, but also, unlike most constitutions of countries of the West, recognizes and guarantees basic human duties. It seems that the framers of our Constitution realized that the individual human being does not exist or live in isolation, but exists and lives in society. Our Constitution shares this characteristic with the Constitution in India which contains B `Fundamental Duties' of every citizen of India in Part IVA of the Constitution. There is however a significant difference between our situation and that of India on this point. First, the fundamental or basic duties recognized by our Constitution are attributed to human beings, whereas those under the Indian Constitution are attributed to Indian citizens only. Second, under the Constitution of India, C fundamental rights are dealt with in a separate part of the Constitution (Part III) and fundamental duties in another separate part (Part IVA). In our situation, both fundamental or basic rights and duties are dealt with in one single part of the Constitution, that is, Part III. This location of basic rights D and duties in one single part of the Constitution of the United Republic if both symbolic and significant. It is a symbolism and an expression of a constitutionally recognized co-existence of the individual

human being and society, as well as the co-existence of rights and duties of the individual E and society.

This view is supported by the principles underlying The African Charter on Human and Peoples' Rights which was adopted by the Organisation of African Unity in 1981 and came into force on 21 F October 1986 after the necessary ratifications.

Tanzania signed the Charter on 31 May 1982 and ratified it on 18 February 1984. Since our Bill of rights and Duties was introduced into the Constitution under the Fifth Amendment in February 1985, G that is, slightly over three years after Tanzania signed the Charter, and about a year after ratification, account must be taken of that Charter in interpreting our Bill of Rights and Duties.

The preamble to the Charter states:

H `The African States members of the Organization of African Unity, parties to the present convention entitled "African Charter on Human and People's Rights".

. . .

Taking into consideration the virtues of their historical tradition and the values of African civilization which should I inspire and characterize their reflection on the concept of human and peoples' rights;

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Recognizing on the one hand, that fundamental human rights stem from attributes of human beings, which justified A their international protection, and on the other hand that the reality and respect of peoples' rights should necessarily guarantee human rights;

Considering that the enjoyment of rights and freedoms also implies to performance of duties on the part of everyone; . . .' B

It seems evident in our view that the Bill of rights and Duties embodied in our Constitution is consistent with the concepts underlying the African Charter on Human and People's Rights as stated in the Preamble to the Charter. C

The second important principle or characteristic to be borne in mind when interpreting our Constitution is a corollary of the reality of co-existence of the individual and society, and also the D reality of co-existence of rights and duties of the individual on the one hand, and the collective or communitarian rights and duties of society on the other. In effect this co-existence means that the rights and duties of the individual are limited by the rights and duties of society, and vice versa. Thus under article 29(5) it is stated:

`(5) For the purposes of the better enjoyment by all persons of the rights and freedoms specified in this Constitution, E every person shall so conduct himself and his affairs as not to prejudice the rights and freedom of others or the public interests.'

The same principle or characteristic is reflected in article 30(1) which states: F

`The rights and freedoms whose basic content have been set out in this Constitution shall not be exercised by any person in such a manner as to occasion the infringement or termination of the rights and freedoms of others or the public interest.' G

We are aware that such limitations to basic rights and duties are not unique to Tanzania. They are inherent in any society and are to be found in many Constitutions and legal systems. Thus the merits and demerits of any legal system insofar as the question of Human Rights is concerned depend H upon the extent to which a particular legal system succeeds or fails to harmonize the basic rights and freedoms of the individual on the one hand, and the collective or communitarian rights and duties of Society on the other.

It is in the light of these considerations that the provisions of s 148(5)(e) of the Criminal Procedure I Act and those of article

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A 15(2)(a) and article 30(2)(b) must be construed as to their meaning and effect. We must start with article 15 which we have already reproduced earlier. As already observed, Mr Massaba, learned Principal State Attorney, contends that the provisions of s 148(5)(e) which deprive an accused B person of his or her personal liberty by prohibiting the grant of bail are constitutionally valid, since such deprivation is done in respect of circumstances and according to a procedure prescribed by law. According to his argument, the requirements of article 15(2)(c) are fulfilled, since the prescribed circumstances are the offences charged, and the prescribed procedure is implied under the Criminal C Procedure Act, in that the accused has opportunity to be heard before he is remanded into custody by the subordinate court. In response to our question whether such procedure is meaningful when it does not affect the outcome in the sense that the accused is bound to be denied bail whatever he may say on his behalf, Mr Massaba replied to the effect that although such hearing is of no D consequence on the issue of denial of bail, it may result in the dismissal of the charge when for instance, such charge discloses no offence known to the law of the land.

E Unfortunately, the learned Trial Judge did not specifically consider the issue whether the requirements of article 15(2)(a) are fulfilled by the provisions of s 148(5)(e). What he stated on this point is as follows:

F `Article 15 of our Constitution provides for Rights to liberty such that no one may be deprived of his freedoms except in accordance with the law. Now s 148 of the CPA derogates from the right to liberty, and so it is ex-facie ultra vires the provisions of article 15 of the Constitution. It is for the Republic to prove that s 148 of the CPA is saved by arts 30 and 31 of the Constitution which permit Parliament to enact laws which derogate from the fundamental rights G enshrined in the Constitution by showing that the statute in question is in the public interest and justifiable on national security grounds. The Republic has to prove on a balance of probabilities.'

H It would seem that the learned Trial Judge is of the view that every statute which derogates from the right to personal liberty `is ex-facie ultra vires the provisions of article 15'. This view is obviously wrong because article 15 itself provides for derogation under sub-art (2).

I On a close examination of article 15, it is apparent that there are two situations under which a person may be denied or deprived of

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personal liberty under the same article. For purposes of clarity we repeat the provisions of article 15. A

`15 (1) Man's freedom is inviolable and every person is entitled to his personal freedom.

(2) for the purpose of protecting the right to personal freedom, no person shall be subject to arrest, restriction, B detention, exile or deprivation of his liberty in any other manner save in the following cases:

(a) in certain circumstances, and subject to a procedure, prescribed by law; or

(b) in the execution of the sentence or order of a court in respect of which he has been convicted.' C

It is obvious from these provisions that a person may be deprived or denied of personal liberty under article 15 only under the conditions stipulated under paras (a) and (b). In the case before us, it is para (a) which is relevant. That paragraph sanctions the deprivation or denial of liberty under `certain D circumstances' and `subject to a procedure', both of which must be `prescribed by law'.

In our considered opinion, there is no difficulty in finding the `certain circumstances' prescribed by s 148(5)(c) for deprivation or denial of personal liberty through the prohibition of bail. This is provided E for in the words underlined hereunder:

`(5) A police officer in charge of a police station, or a court before whom an accused person is brought or appears shall not admit that person to bail, if - F

(a) . . .

(b) . . .

(c) . . .

(d) . . .

(e) the act or any of the acts constituting the offence with which a person is charged consists of a serious G assault causing grievous harm on or threat of violence to other person, or of having or possessing a firearm or an explosive.'

There is however a real problem in finding the requisite prescribed procedure for denying bail to the H accused. As already mentioned, Mr Massaba, learned Principal State Attorney, contends in effect that such procedure is implied under the Criminal Procedure Act in that there is nothing under s 148 which prohibits the court from hearing the accused in respect of bail before remanding him into I custody. With due respect to Mr Massaba, we are satisfied that

A he is wrong, and that his error is a result of a misconception as to what amounts to `a procedure' in terms of para (a) of article 15.

From a close examination of sub-art (2) of article 15, it is apparent that its wording is so emphatically protective of the right to personal liberty that the procedure envisaged under para (a) cannot be B anything but a procedure of safeguards by which one may be deprived or denied of personal liberty. In the words of the Supreme Court of India which considered a

similar provision in the Indian Constitution in the case of Maneka Gandhi v Union of India (1) at 621.

C `Is the prescription of some sort of procedure enough or must the procedure comply with any particular requirements? Obviously procedure cannot be arbitrary, unfair or unreasonable.'

We are unable to find under s 148 or elsewhere any prescription for the requisite procedure for denial D of bail in terms of para (a) of article 15(2) of the Constitution of this country. It follows therefore that s 148(5)(e) of the Act is violative of article 15(2) of the Constitution and we so find.

E We must now examine whether the provisions of s 148(5)(e) are also violative of article 13(6)(a) of the Constitution. That article deals with the basic right to be heard before being condemned. It states:

`(6) For the purposes of ensuring equality before the law the state shall make provisions:

F (a) that very person, when his rights and obligations are being determined, be entitled to a fair hearing by the court of law or other body concerned and be guaranteed of the right of appeal or to another legal remedy against the decision of courts of law and other bodies which decide on his rights or interests founded on G statutory provisions.'

The learned Trial Judge in the case before us was of the view that an accused person is not given any meaningful opportunity of being heard before he is denied bail under s 148(5)(e) of the Criminal H Procedure Act. In our view the provisions of article 13(6)(a) are really inapplicable to s 148(5)(e). We say so because that part of the article concerns only situations `when . . . rights and obligations are being determined' and not situations such as under s 148(5)(e) when the court make a particular order, without discretion.

I Next we turn to article 13(6)(b) of the Constitution to see

whether the Trial Judge was correct in holding to the effect that the relevant provisions of s 148(5)(e) A were violative of that article. The paragraph reads:

`(6) For the purposes of ensuring equality before the law, the state shall make provisions - B

(a) . . . (cited above)

(b) every person charged with a criminal offence shall be presumed to be innocent until he is proved guilty.'

This is another article of which English translation does not correctly reflect the Swahili version, C which is the controlling version. The concept contained in the Swahili version is broader than the English translation. A proper translation of the article should read along the following lines:

`No one charged with a criminal offence shall be treated like a convict until his guilt is proved.' D

On a proper interpretation of s 148(5)(e), we agree with a part of what Msumi J stated in the case of Republic v Peregrin Mrope (2) where he stated, inter alia: E

`On the question of unconstitutionality, I am of the view that s 148(5)(e) does not contravene the provision of article 13(6)(b), ... Denying bail to accused person does not necessarily amount to treating such a person like a convicted criminal.' F

With regard to the provisions of article 13(4) and (5) which prohibit discriminatory legislation incompatible with the basic right to equality before the law, the learned Trial Judge held to the effect that s 148, which prohibited bail for certain offences, was violative of article 13(4) and (5). In coming to that conclusion, the learned Trial Judge was influenced by the meaning of discrimination, as G defined by the Court of Appeal of the Cook Islands in the case of Clark v Karika (3) also by the Supreme Court of the United States in the case of Lindsley v Natural Carbonic Gas Co (4) and the case of Megowan v Maryland (5). With due respect to the learned Trial Judge, he seems to have H misdirected himself and the correct interpretation of `discrimination' as envisaged under article 13(4) and (5). The term `discrimination' is specifically defined under sub-art (5) as follows:

`For the purpose of this section the expression "discriminatory" I

A means affording different treatment to different persons attributable only or mainly to their respective descriptions by race, place of origin, political opinion, colour, occupation or creed whereby persons of one such description are subject to disabilities or restrictions to which persons of another description are not made subject or are accorded B privileges or advantages which are not accorded to persons of such description.'

This is another English translation which is incorrect in certain parts. The word `occupation' used therein is not the correct rendering of the Swahili expression `hali yao ya maisha'. We think the C correct English translation consistent with the underlying concept should be something like, `Their status in life'.

Bearing in mind, as we must, this interpretation, we are satisfied that the selective prohibition against D bail contained under s 148(5)(e) cannot be said to be discriminatory in terms of the Constitution. This is because the accused persons who are denied bail are so denied on the basis of their actions or conduct.

Finally, we must consider whether the learned Trial Judge was correct in holding that the relevant provisions of s 148 were violative of the Doctrine of Separation of Powers stated under article 4. After E reviewing several decisions by a number of courts in Commonwealth countries, the learned Trial Judge concluded:

`Pursuant to that reasoning, which I adopt, I am of the view that the fettering or removing of judicial discretion by the F legislature in matters of granting bail under s 148 of the CPA is unconstitutional. . . .'

With due respect to the learned Trial Judge, we think he came to a wrong conclusion. In our view, the G Doctrine of Separation of Powers can be said to be infringed when either the Executive or the Legislature takes over the function of the Judicature involving the interpretation of the laws and the adjudication of rights and duties in disputes either between individual persons or between the state H and individual persons. Legislation which prohibits

the grant of bail to persons charged with specified offences doe not in our view amount to such a take over of judicial functions by the Legislature. Such legislation do exist in several countries of the Commonwealth, such as Zimbabwe and The Gambia, where their constitutional validity has been confirmed in cases like Bull v Minister of Home Affairs (6) I and Attorney-General of the Gambia v Momeduu Jobo (7).

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NYALALI CJ

In the end however, when all is said and done, we find that the provisions of s 148(5)e) are violative A of article 15(2)(a) of the Constitution. To the extent that s 148(5)(e) violates the Constitution, it would be null and void in terms of article 64(5) of the Constitution, unless it is saved by the general derogation clauses, that is, article 30 and 31, which permits certain derogations from the basic rights of the individual. B

Article 30 and 31 states as follows:

`30(1) The rights and freedoms whose basic content have been set out in this Constitution shall not be exercised by any person in such a manner as to occasion the infringement or termination of the rights and freedoms of others or C the public interest.

(2) It is hereby declared that no provision contained in this Part of this Constitution, which stipulates the basic human rights, freedoms and duties, shall be construed as invalidating any existing law or prohibiting the enactment of any law or the doing of any lawful act under such law, making provision for - D

(a) ensuring that the rights and freedoms of others or the public interest are not prejudiced by the misuse of the individual rights and freedoms;

(b) ensuring the interests of defence, public safety, public order, public morality, public health, rural and urban E development and utilization of mineral resources or the development or utilization of any other property in such manner as to promote the public benefit;

(c) ensuring the executions of the judgment or order of court given or made in any civil or criminal proceedings; F

(d) the protection of the reputation, rights and freedoms of others or the private lives of persons involved in any court proceedings, prohibiting the disclosure of confidential information, or the safeguard of the dignity, authority and independence of the courts; G

(e) imposing restrictions, supervision and control over the establishment, management and operation of societies and private companies in the country; or

(f) enabling any other things to be done which promotes, enhances or protects the national interest generally.' H

Article 31:

`31(1) Notwithstanding the provision of s 30(2), an Act of Parliament shall not be invalid for the reason only that it provides for the taking, during periods of emergency, or in ordinary times in relation to individuals who are believed to be conducting them- I

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NYALALI CJ

A selves in a manner that derogate from the provisions of ss 14 and 15 of this Constitution.

(2) No measure referred to in s (1) shall be taken in pursuance of any law during any period of emergency, or in ordinary times in relation to any person, save only to the extent to which they are necessary and justifiable for dealing B with the situation that exists during the period of emergency or in ordinary times dealing with the situation created by the conduct of the individual in question.

(3) Nothing in this section shall be construed to authorize the deprivation of any person of the right to live except in respect of death caused as a result of acts of war.

C (4) In this and the following sections of this Part `period of emergency' means any period during which the proclamation of a state of emergency made by the President in the exercise of the powers conferred on him by s 32, continuous in force.'

D The question that arises is whether s 148(5)(e) fits into the provisions of article 30 or 31. The learned Trial Judge dealt with this aspect of the case and stated:

`Therefore if the Republic wants bail to be denied under the provisions of article 30 of the Constitution on the ground E that the provisions of s 148(4) and (5) of the CPA are in the public interest the said provisions of s 148(4) and (5) of the CPA must pass the proportionality test on a balance of probabilities. Similarly when the Republic wants the court to refuse bail to the accused person under the provision of article 31 of the Constitution on the ground that the provisions of s 148(4) and (5) were enacted on national security grounds the Republic has to prove and establish F that these provisions of s 148(4) and (5) of the CPA are necessary and reasonably justifiable. If the Republic overcomes both these two hurdles then only then, may the courts refuse bail, but after affording the accused person opportunity to challenge the Republic's statements and remarks.'

G It is apparent from the above cited paragraph, that the learned Trial Judge is of the view that the answer to the question whether s 148(5)(e) fits into the provisions of article 30 depends upon proof by evidence adduced by the prosecution. With due respect to the learned Trial Judge, we do not think that this is a question of evidence at all. On the contrary, it is a question of law. Mr Massaba correctly H confined his submissions to the provisions of article 30. Obviously, article 31 is not relevant to the case before us. It is Mr Massaba's contention that if s 148(5)(e) is found to fall short of the requirements of article 15(2)(a), it is nevertheless validated by the provisions of para (b) of sub-art (2) I of article 30 of the Constitution.

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NYALALI CJ

We accept the proposition that any legislation which falls within the parameters of article 30 is A constitutionally valid, notwithstanding that it may be violative of basic rights of the individual. But, and this is the crucial but, such legislation must fit squarely within the provisions of the article. Any statute which is so broad as to fall partly within and partly outside the parameters of the article would not be validated for the reason to be given hereafter. Let us therefore see whether section 148 (5)(e) falls B fully within para (b) of sub-art (2) of article 30.

It is apparent that s 148(5)(e) would be validated if it can be construed as being wholly for `ensuring the interests of defence, public safety, public order' in terms of para (b) of sub-art (2)

of article 30. C Since the objective of the relevant paragraph of the Constitution is the `ensuring' or protection of the `the interests of defence, public safety, public order', etc. s 148(5)(e) would be saved if the denial of bail is aimed only at accused persons who are capable of being a danger or threat to the interests of D defence, public safety or public order.

In our considered opinion the provisions of s 148(5)(e) are so broad that they encompass even accused persons who cannot reasonably be construed to be such a danger in terms of the relevant paragraph of the Constitution. For instance, these provisions cover an accused person who, while E defending himself or his property against robbers uses excessive force resulting in the death of one or more of the robbers. They also cover an accused person who finds someone committing adultery with that person's spouse, and being provoked, seriously assaults and causes grievous bodily harm F to the adulterer. Similarly, the provisions also encompass an accused person who, to the knowledge of everyone, inherits a firearm from his or her parent but forgot to obtain a firearm licence, thereby unwittingly committing the offence of being in possession of a firearm without a licence. G Section 148(5)(e) would also cover every person who, though licensed to possess a firearm, forgets to renew his or her licence within the prescribed period. Many more such examples may be given. None of these persons can reasonably be said to be dangerous. H

It is thus plain that the provisions of s 148(5)(e) are so broadly drafted that they are capable of depriving personal liberty not only to persons properly considered to be dangerous, but even to persons who cannot be considered to be dangerous in terms of the meaning of para (b) of sub-art (2) of article 30. Such a statutory provision amounts to the Kiswahili proverbial rat-trap which catches I both

A rats and humans, without distinction. A provision of that nature attempts to protect society by endangering society. Section 148(5)(e) is such a provision. It does not therefore fit into article 30(2)(a) of the Constitution and is consequently null and void.

In the final analysis therefore, but for different reasons, we agree with Mwalusanya J that s 148(5)(e) B is unconstitutional and is therefore struck out of the statute book of the country. This means that the courts have discretion to grant bail to persons accused of the offences specified under s 148(5)(e) in accordance with the law as it existed before the enactment of s 148(5)(e). This discretion ought C always to be exercised judicially by the courts taking into account both the interests of the individual, and the community of which the individual is a part.

Thus we dismiss the appeal. Since the respondent is already a free man, we make no order in D respect of him.

E

[zRPz]REPUBLIC v NELSON RUPIA 1993 TLR 44 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Lugakingira J

F CRIMINAL REVISION NO. 17 OF 1991

11 June, 1991

Flynote

G Criminal Practice and procedure - Adjournments - Compliance with s 225(4) of the Criminal Procedure Act, 1985.

-Headnote

At the expiration of an aggregate of sixty days the magistrate ordered another adjournment although there was no certificate from the Regional Crimes Officer stating the need and grounds for adjournment.

H Held: At the expiration of an aggregate sixty days and no certificate is filed by the Regional Crimes Officer the court must either proceed to hear the case or discharge the accused if the prosecution is unable to proceed with the hearing;

Case Information

I Order accordingly.

No case referred to.

1993 TLR p45

[zJDz]Judgment

Lugakingira J: On 18 August 1989 the accused was arraigned before the District court at Kisutu on A a charge of stealing by public servant c/ss 265 and 270 of the Penal Code. There has been no further progress in the case, the prosecution having consistently claimed that investigations were not complete. Meanwhile, the prosecution has been allowed to get away with adjournments as if no law B governed the matter.

As provided under s 225(4) of the Criminal Procedure Act 1985, it is unlawful with certain offences to adjourn a case for an aggregate exceeding sixty days except under the circumstances set out in paras (a), (b) and (c) thereof. These are: C

(a) At the expiration of an aggregate sixty days a case may lawfully be adjourned for a further period not exceeding a similar aggregate if the Regional Crimes Officer files a certificate in court stating the need and grounds for adjournment. D

(b) At the expiration of the aggregate in (a) further adjournment not exceeding the same aggregate has to be granted where a State Attorney files a similar certificate.

(c) At the expiration of the aggregate in (b), and if the DPP files a similar certificate, the court would further adjourn the case, but not for a period exceeding an aggregate of twenty-four E months from the date of the first adjournment in (a). When no certificate is filed ss (5) requires the court to proceed to hear the case or to discharge the accused if the prosecution is unable to proceed with the hearing. F

These are mandatory provisions and the court has no discretion in the matter. Adjournment granted in contravention of same is unlawful and, therefore, void.

In this case the accused was first brought to court and his plea taken on 18 August 1989. The court G had discretion to grant adjournments for an aggregate not exceeding sixty days. Since

no hearing intervened after the plea was taken, I reckon that this aggregate was achieved by 17 October 1989. Beyond that date and since the hearing did not then commence, further adjournment required the H certificate of the Regional Crimes Officer. There was no such certificate and, interestingly, it is precisely on that date that the presiding resident magistrate purported to order further adjournment. I am satisfied that the order was unlawful and anything thereafter was null and void.

I have asked myself whether the Regional Crimes Officer can be I

A permitted to file a certificate now but the answer is no. There is no power to allow such a procedure at this stage because the only course allowed to the court is to proceed with the hearing or to discharge the accused. I therefore quash the adjournment order made on 17 October 1989 and the subsequent proceedings and direct the District Court to require the prosecution to call evidence B or to discharge the accused if the prosecution is unable to do so immediately.

D

[zRPz]ATTORNEY GENERAL v W.K. BUTAMBALA 1993 TLR 46 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Makame JJA and Ramadhani JJA and Mapigano Ag JA

E CRIMINAL APPEAL NO. 37 OF 1991

14 June, 1991

F (From the decision of the High Court of Tanzania at Mwanza, Mwalusanya, J.)

Flynote

Constitutional Law - Jurisdiction of the High Court to enforce basic rights enshrined in the Constitution - Judge raises issue of constitutionality without there being a complaint - Whether judge has jurisdiction.

G Bill of Rights - Procedure and practice of the High Court in enforcing constitutional bill of rights - Judge raises issue of constitutionality without there being any complaint to court - Whether procedurally proper.

-Headnote

H The respondent, advocate, handled three legal aid briefs. After the sessions were closed the respondent wrote to the Trial Judge the usual letter to have his fees assessed in terms of the Legal Aid (Criminal Proceedings) Act, No. 21 of 1969. After receiving the letter the judge thought that the advocates remuneration of between Shs 120/= and Shs 500/= in each case was grossly inadequate and contravened the provisions of Article 23 of the Constitution of the United Republic of Tanzania. I The judge instructed the District Registrar of the High Court to open a Miscella-

neous Criminal Cause, set the hearing date of the application and serve the parties who were W.K. A Butambala and the Attorney-General.

The parties attended the hearing. The State-Attorney who represented the Attorney General raised a preliminary point urging that there should have been a petition in terms of Article 30(3) of the Constitution to the High Court moving the Court into action. The state attorney was overruled, hearing B continued and the judge decided that the paltry sums mentioned in s 4 of Act 21 of 1969 were void because they contravened a constitutional right to a fair remuneration for work done. The learned judge construed s 4 of Act 21 of 1969 as modified to bring it into conformity with the provisions of the Bill of Rights. Then the judge assessed the fees payable to the advocate at Shs 10,000/= for the C three cases (almost 667% of the maximum the advocate would have got under s 4 of Act 21 of 1969).

The Attorney-General appealed challenging the judge for raising the issue of constitutionality suo moto. The procedure followed was also attacked.

Held: (i) The learned judge improperly raised the issue of constitutionality as there was no legitimately permissible occasion for him to do so; D

(ii) If one relies on s 5(1) of Act 16 of 1984 he has to wait until the matter arises in the course of proceedings so that the court gets the opportunity to construe; otherwise he has to petition under Article 30(3) of the Constitution as usual;

(iii) Section 4 of Act 21 of 1969 is still good law. E

Case Information

Appeal allowed.

Cases referred to:

1. Steele v. Attorney General [1967] AIR SL 1.
2. D.P.P. v. Daudi Pete, [1993] TLR 22. F
3. Bull v. Minister of Home Affairs [1986] (1) ZLR 202.
4. Grace Stuart Ibingira v. Uganda [1966] EA 445 CA.

K.A. Mussa, for the appellant.

Rugarabamu, for the respondent. G

[zJDz]Judgment

Makame, J.A., delivered the following considered judgment of the court:

The respondent is an advocate. One of the responsibilities of advocates in Tanzania is to accept H assignments fro appropriate authorities in the Judiciary to defend accused persons. Mr Butambala accepted three such briefs and handled them before Mwalusanya J. They were Criminal Sessions Cases No 66 of 1988; 18 of 1988 and No 113 of 1989. After the Sessions had closed he wrote to the Trial Judge the usual letter (not in the record but which was shown to us during the hearing) to have I his fees assessed in terms of

A the Legal Aid (Criminal Proceedings) Act 21 of 1969. That triggered off the while thing and set in motion a number of processes culminating in this appeal. After receiving the letter the learned Judge wrote the following administrative minute:

B District Registrar

1. Under s 4 of the Legal Aid (Criminal Proceedings) Act No 21/1969, the advocate is to be remunerated between

Shs 120/= to Shs 500/= in each case. Such a paltry sum is outrageous and needs to be looked into.

C 2. Under the Bill of Rights in Art 23 of our Constitution every person who undertakes to do any work has the right to receive a just and favourable remuneration. He is entitled to receive remuneration according to the quantity and quality of the work done. Now it would appear that Act No 21/1969 infringes the above cited provision of the Bill of Rights. Therefore unless D it can be shown on a balance of probabilities by the Republic that under Art 30(2) of the Constitution the said Act No 21/1969 is in public interest, it cannot prevail.

3. Therefore under s 5(1) of Act No 16/1984 I intend to construe s 4 of Act No 21/1969 as modified so as to bring it into conformity with the provisions of the Bill of Rights. Therefore I E will regard the paltry sums mentioned in s 4 of Act No 21/1969 as void and modified, so that now it should read that an advocate shall be `entitled to be remunerated according to the quantity and quality of the work done'. For this view see my judgments in Bernado s/o Ephraim v Holaria Patory & Another: Mwanza (PC) Civil Appeal No 70/1989; and F Magdalena Zacharia v Daniel Zacharia: Mwanza (PC) Civil Appeal No 23/1989. See also the case of Re Maangi: [1968] EA 637 (K) by Farfel J.

4. Open a Misc Crm Cause No 50/90 and add to the title: In the Matter of s 4 of the Legal Aid G (Crim Proceeedings) Act No 21/1969, and In the Matter of Musoma Crim Sessions Cases No 66/1988; 18/1988; and 113/1989. W K Butambala - Applicant and Attorney-General as respondent.

5. Set this application for hearing on 27/7/1990 and serve the above minute to the State Attorney and Mr Butambala immediately.

H (SGD) J L MWALUSANYA

JUDGE.

24/7/1990.

I The District Registrar communicated the contents of the above minute to Mr Butambala.

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MAKAME JA

By a Notice dated 24 July 1990, addressed to the Principal State Attorney, Mwanza, and copied to Mr A Butambala, the hearing was fixed for 27 July 1990 as ordered by the learned Judge. On the return date Mr Malansha, learned State Attorney, for the Attorney-General informed the court that the Chambers were not ready to proceed as they had not yet made the necessary preparations, so they B were asking for an adjournment. A new hearing date was fixed for four days hence and on that second date, the Chambers, now represented by Mr Mussa, learned Senior State Attorney, told the learned Judge they were not ready so he asked for an adjournment until 3 August 1990. His lordship obliged: C

`Hearing on 3/8/1990. Parties warned.'

On the hearing date Mr Mussa, taking a preliminary point, challenged the whole exercise, urging that there should have been a petition in terms of article 30(3) of the Constitution of the United Republic of D Tanzania, to the High Court moving the court into action. Mr Butambala, who appeared in person, urged that the matter was properly before the court as under s 5(1) of Act 16 of 1984, the Constitution (Consequential, Transitional and Temporary Provisions) Act, it was not necessary to file E a petition.

In an expeditious Ruling on the same day, Mr Mussa was overruled. Incredible though it may sound, the substantive hearing proceeded on the same day. On 22nd of January this year the learned Trial Judge, in a rather lengthy judgment, reviewing an array of authorities, held thus: F

`In the upshot, under s 5(1) of Act No 16/1984 I hereby construe s 4 of the Act No 21/1969 to be modified so as to bring it into conformity with the provisions of our Bill of Rights. Therefore I will take it that the paltry sums mentioned in s 4 of Act No 21/1969 are void, and modified to read that an advocate in local aid cases shall be entitled to be G remunerated according to the quantity and quality of the work done as assessed by the certifying authority.'

The learned Judge then proceeded to assess the fees to be paid to Mr Butambala for the three H cases referred to. He ordered that the learned Advocate should be paid Shs 5,000/= for one of the cases, and Shs 2,500/= for each of the other two cases, total Shs 10,000/=, that is, arithmetically, almost 667% of the maximum of what Mr Butambala could have hoped to get under s 4 of the Local Aid (Criminal Proceedings) Act 21 of 1969. I

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MAKAME JA

A The Attorney-General was not satisfied with the High Court decision so he took this appeal. He was represented before us by the same Mr Mussa. The respondent, who was present in Court, was represented by Mr Rugarabamu, the most senior of private advocates based here in Mwanza.

B The Attorney-General's Memorandum consisted of five grounds of appeal. We propose to deal with the first two grounds first. In those two grounds the appellant complained that the learned Judge was in error to raise the issue of constitutionality without there being a complaint `from the allegedly aggrieved respondent'. The second ground of appeal urged that as the said application raised C matters of both fact and law, it was wrong to arrive at a decision without there being a factual basis for such a decision.

In his address to the court on those two grounds Mr Mussa submitted that there should have been a D complaint made by Mr Butambala, with material facts, that he has a Constitutional right, (in this case the right to receive a just and favourable remuneration for work done) and that that right had been infringed. He referred us to Steele v Attorney-General (1), a decision of the Supreme Court of Sierra Leone. In the present case Mr Butambala merely asked for his fees to be assessed in E accordance with the existing law and nothing more. The Criminal Sessions case records allegedly giving rise to the High Court proceedings were not made available for the purpose. Along with this Mr Mussa submitted that it was wrong for the Judge to hold that he had competent jurisdiction by virtue F of Act 16 of 1984 referred to so that he could proceed the way he did even in the absence of a complaint. The learned Judge proceeded suo motu which he was not empowered to do. If Mr Butambala was a complainant then there is a

provision available - article 30(3) and (4). Mr Mussa further added that the learned Judge erred in his observation that under article 30(3) the filing of a G petition to the High Court is not the only recourse because it is provided that that avenue is `without prejudice to any other action or remedy lawfully available to him in respect of the same matter'. The point Mr Mussa was making here is that the learned Judge misled himself into relying on these H words which are not in the Kiswahili version. We may pause and say that Mr Mussa is right here. The Kiswahili rendering goes like this:

I `30(3) Mtu ye yote anayedai kuva sharti lo loto katika Sehemu hii ya Sura hii au katika sheria yo yote inayohusu haki yake au wajibu kwake, limevunjwa, linavunjwa au inaelekea litavunjwa na mtu ye

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MAKAME JA

yote popote katika Jamhuri ya Muungano anaweza kufungua shauri katika Mahakana Kuu.' A

We note from this that there is not the usual `Bila ya kuathiri . . .' `Without prejudice . . .'. So that under article 30(3) one has to institute proceedings for relief in the High Court and the Kiswahili version, which is the controlling version, does not provide for other means. B

We now turn to Mr Rugrabamu's response on the first two grounds which he argued together. He argued in effect that it is correct that the whole thing started with Mwalusanya J's view that the fees paid to advocates under the 1969 law were inadequate. Mr Rugarabamu conceded that Mr C Butambala did not complain. Rather he and the Attorney-General were invited as amicus curiae to whom the learned Judge posed a problem involving the interpretation of the Constitution and asked them to assist. According to the learned Advocate, the learned Judge had the power to go about D construing the Constitution that way because the particular law, Act 21 of 1969, was enacted before 1985. According to Mr Rugarabamu it is unnecessary to make a complaint before the court so the first two grounds have no merit. E

As we see it the first two grounds involve two distinct issues - one of jurisdiction and the second one of procedure. They were however consolidated in learned arguments and we propose to treat them similarly. Before we do that we think it is opportune to interject a few brief remarks. We need F hardly say that our Constitution is a serious and solemn document. We think that invoking it and knocking down laws or portions of them should be reserved for appropriate and really momentous occasions. Things which can easily be taken up by administrative initiative are best pursued in that manner. If we may be permitted to borrow and extend the term `Ambulance Lawyers' in currency in G certain jurisdiction, it is not desirable to reach a situation where we have `ambulance courts' which go round looking for situations where we can invalidate statutes. We say this deliberately and by design, and we do not think this is conservative in the negative same. We think it is responsible and responsive to the needs of our Society. There is, or should be, plenty of room for judges and H magistrates to make positive and constructive inputs which can influence legislation in the right direction. The old practice where judges and magistrates used to construct such opinions for consideration by their own higher authorities or conferences should continue to be encour- I

A aged. It is a necessary and progressive function. We must not be understood to mean that judges should shy away from their function of construing the Constitution which is their proper duty and legitimate province. But there must be occasion for that. That is judicial power reserved for judicial situations. When we are moved we move into judicial action and fulfil our responsibilities. Not B otherwise. We are not knight errants.

To turn to the specifics now and we think they are hard:

Mr Butambala wrote to the Judge before whom he had appeared in the Criminal Sessions asking for C his fees to be assessed in accordance with the existing law, Act 21 of 1969. He was not complaining. If he thought the maximum fees payable were inadequate he did not say so. If he thought the law should be changed he and the Bar generally would know what to do and where. He knows the fora available, and the lobby. It would be perfectly alright for a Judge also, if he so feels, to D take administrative initiative to have the fees raised.

In the present case the learned Judge, on his own, decided, without complaint and before the benefit of learned arguments, to construe s 4 of Act 21 of 1969. `I intend to construe s 4 of the Act No 21/69 E as modified . . . I will regard the paltry sums mentioned in s 4 of Act No 21/1969 as void and modified . . . Set the application for hearing on 27/7/90 and serve the above minute to the State Attorney and Mr Butambala immediately.'

The italics are supplied by us to throw our view point into the sharp relief we desire. Where was the F application the learned Judge was referring to? There was none! And what if Mr Butambala had declined the invitation? We posed the question to counsel and Mr Mussa suggested that by the look of things the learned Judge have gone right ahead and do what he was intent upon doing.

G In the Sierra Leone case Mr Mussa referred us to, the point discussed above was not directly in issue but we cull from the decision:

(a) The applicant must allege that a provision of the Constitution was contravened in relation to him.

H (b) He must invoke the power of the High Court.

(c) That power of the court is a judicial power.

In our recent DPP v Daudi Pete (2) there were proceedings, a base, which contained material from I which to hold, reasonably and legitimately, that what the respondent was alleging was a viola-

tion of his constitutional right, albeit inarticulately and without elegance. We have no quarrel with the A relevant aspect of the decision in the Zimbabwe case of Bull v Minister of Home Affairs (3) the learned Judge quoted.

The holding therein was that a formal petition was not necessary. The court did not say that no step whatsoever was required to be taken by any party. What was decided in Grace Stuart Ibingira v B Uganda (4) was that the court will not desist from hearing the matter because of

procedural irregularity particularly where the parties accept that the court has jurisdiction. That is not to say that the court would vest itself with jurisdiction in any event. The question whether a court has jurisdiction C is not a question of procedural propriety. It is not a nicety; it is fundamental.

Section 5(1) of Act of 1984 was pleaded by Mr Butambala and relied on by the learned Judge. We happily go along with Mwalusanya J that the provision deals with statutes or laws existing prior to D March 1985. Act 16 of 1984 provides so. In the exercise of its original jurisdiction the High Court may modify, adapt etc a law, yes, that must be in the process of construction. To construe, as used here, is a term of art, which implies a judicial interpretation of laws. It is not possible to do that unless there is a proceeding, a legitimate occasion, and you do not have to `threaten' to do so in a certain manner E and direction under your own steam, when no one says he is bothered.

If one relies on s 5(1) of Act 16 of 1984 one has to wait until the matter arises in the course of proceedings so that the court gets the opportunity to construe. Otherwise he has to petition under F article 30(3) as usual. It would conceivably have been possible to advise Mr Butambala to set the process in Motion by formally complaining, but we are not in a position to pronounce on the judicial propriety and desirability of that course of action either. G

We are of the carefully considered opinion, for reasons we have endeavoured to indicate, that the learned Judge improperly raised the issue of constitutionality and that there was no legitimately permissible occasion for him to do so. This is enough to dispose of the appeal in favour of the H Attorney-General who did not think he was drafted in as a friend of the court. Mr Mussa must be forgiven for adding that if the Attorney-General was a friend of the court then he was a reluctant friend. We wish to observe that before you can have amicus curiae you need first to have a curia gone to. I

With respect, Mwalusanya J initiated his own cause and then sat

A on it as a Judge. One may be tempted to think that he had made up his mind and so the whole exercise of bringing Mr Butambala and the Attorney-General on record and listening to their arguments was illusory. The approach was manifestly unjudicial and emphatically undesirable.

B This appeal is allowed. The effect of this is that s 4 of Act 21 of 1969 is still good law and in the books. It follows that the range of fees provided therein is still the legal one therefore the payment of Shs 10,000/= ordered to be paid to Mr Butambala are illegal and must be refunded, less the amounts C to be assessed afresh by Mwalusanya J in accordance with the existing law.

We make no orders as to costs.

We want to add this: Learned counsel on both sides were of useful help. We did not find the issues very easy and that is why had the judgment of this `curia' had to be curia advisari vult.

D We do not now need to consider the useful arguments learned counsel advanced on the remaining three grounds which we might have touched upon in the course of considering the first two grounds.

E By way of post-script we desire to add that the fees payable under s 4 of the Legal Aid (Criminal Proceedings) Act 21 of 1969 may be grossly inadequate and out of date. We think something positive must be done, unless the public philosophy is that the service advocates render under the F law are intended to be akin to the classical dock briefs of some jurisdictions.
1993 TLR p55

A

[zRPz]REPUBLIC v MICHAEL GODFREY SENKORO AND FIVE OTHERS 1993 TLR 55 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Lugakingira J

CRIMINAL REVISION NO. 21 OF 1991 B
21 June, 1991
Flynote
Economic and organized crime control - Jurisdiction of subordinate Courts - Director of Public Prosecutions C confers jurisdiction on a Court of Resident Magistrate - Case tried by a District Court - Whether lawful.
Criminal practice and procedure - Adjournment not in compliance with section 225(4) Criminal Procedure Act, 1985 - Whether Proceedings valid. D
-Headnote
This case was brought before the High Court in order to revise the proceedings from the standpoint of suspected unlawful adjournments. Going through the file the learned Judge found that at a certain E stage the accused were charged under the Economic and Organized Crime Control Act, No. 13 of 1984, whose offences are triable by the High Court unless the Director of Public Prosecution appends a certificate to the charge directing which other court should try the case. In this case the certificate directed that the case be tried by a Court of Resident Magistrate. The proceedings, however, continued on the same District Court file. The court record also showed that there were F many adjournments in contravention of section 225(4) of the Criminal Procedure Act, 1985.
Held: (i) Subordinate courts have no jurisdiction to try offences triable under Act No. 13 of 1984 unless such jurisdiction is specifically conferred by the Director of Public Prosecutions; G

(ii) In the instant case the DPP conferred jurisdiction on a court of Resident Magistrate not on a District Court;

(iii) It was unlawful for the District Court to preside in a matter over which jurisdiction had been conferred on a Court of Resident Magistrate; H

(iv) The adjournments ordered in the wake of this charge sheet did not comply with the provisions of section 225(4) of the Criminal Procedure Act, 1985.
Case Information
Proceedings quashed.
No cases referred to. I

1993 TLR p56

[zJDz]Judgment

A Lugakingira J: This proceeding has suffered considerable mismanagement. Originally six persons were on 6 June 1988 charged before the District Court at Kisutu on one count of stealing by a public servant, it being alleged that in June 1983 they stole Shs 1,148,000/= the property of what B was then the Ministry of Communications and Works, their employer. They denied the charge and a ritual of adjournments ensued for one flimsy reason or another and in complete disregard of the provisions of s 225(4) of the Criminal Procedure Act 1985.

C On 5 March 1990 the prosecutor withdrew the charge and substituted another, this time charging one person with eleven counts of stealing by a public servant and, in the alternative, charging that person and seven others on two counts of occasioning loss to a specified authority. The alternative counts were laid under the Economic and Organised Crime Control Act 13 of 1984, and, in accordance with the provisions of s 12(3) of the said Act, the Director of Public Prosecutions D appended a certificate to the charge directing that the case be tried by a Resident Magistrate's Court. As if that made no difference, the proceedings were continued on the same District Court file.

E I pause to say that this was illegal. Subordinate courts have no jurisdiction to try offences triable under Act 13 of 1984 unless such jurisdiction is specifically conferred by the Director of Public Prosecutions. In the instant case the DPP conferred jurisdiction on a court of resident magistrate, not a district court. The two courts are distinct and each has its own registers; and although the F same set of magistrates could in certain circumstances serve both courts, it is not correct to imagine that a district court can lawfully take over a case jurisdiction over which is vested in a court of resident magistrate. The District Court had no jurisdiction to entertain the new charge and the G proceedings became void from the moment it did so. Oblivious of this the court went on to take pleas and once again to indulge in adjournments as if no law governed the matter.

On 30 May 1990 the saga took a new turn. The prosecutor stated to the court: `I ask for the court to H substitute an old charge for a new one.' Apparently the presiding magistrate understood what that meant and recorded: `A fresh charge sheet admitted.' It also seems that the `fresh charge sheet' joined the previous eight accused persons; hence the magistrate went on to take pleas from six persons then present and to order the arrest of two who were absent. He then adjourned the hearing to 30 June 1990. On that day the case was further adjourned to 30 July 1990 to enable the I prosecutor to

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LUGAKINGIRA J

join another person in the charge. On 30 July 1990 there was no reference to this subject; instead A the prosecutor told the court that the Republic wished to withdraw the charge against the 6th, 7th and 8th accused. They were accordingly discharged and the case was further adjourned to 30 August 1990.

Before going further I should state that the `fresh charge sheet' is nowhere to be found in the case B file. Except for the assumption that the same eight persons were freshly charged, I do not

know what they were charged with. It is then apparent that the `fresh charge sheet' contained a count or counts brought under Act 13 of 1984 for when discharging the 6th, 7th and 8th accused the magistrate C purported to cite `section 96' of that Act. But I have not seen the `fresh charge sheet'. I do not know whether the DPP's consent to prosecute was obtained in terms of s 26(1); I do not know whether, on this occasion, jurisdiction to try the case was conferred on a district court. But having stated this, let me turn to complete the saga. D

On 30 August 1990, the adjourned date, the prosecutor (a different one, to be sure) scanned the courtroom and was surprised to see that the 6th, 7th and 8th accused were absent. He promptly applied for their arrest. Somehow the presiding magistrate overlooked the application but it was E subsequently granted by another magistrate on 20 September 1990. I do not know whether they have been arrested to date, but adjournments continued at discretion until 27 April 1991 after which the record was called here.

It was originally expected to revise the proceeding from the standpoint of suspected unlawful F adjournments but the above review has uncovered additional scandals. That has widened the scope in which the matter may be dealt with. To begin with, I have already stated that it was unlawful for the District Court to preside in a matter over which jurisdiction had been conferred on a court of resident magistrate. The proceedings were for that reason void. The position would have changed if I were G assured that in the `fresh charge sheet' the Director of Public Prosecution had shifted the jurisdiction to a district court. I have not seen this charge sheet; above all, I do not know what offences it actually alleges. I am therefore not in a position to know that the District Court is lawfully seized of the H proceeding and that is sufficient reason to quash the same. I should add, however, that even if it turned out that the District Court regained jurisdiction under the `fresh charge sheet', I would still hold the proceeding void and quash the same on the ground that the adjournments ordered in the wake of this charge sheet did not comply with s 225(4) of the Criminal Procedure Act. I

A The proceeding is quashed in its entirety and the accused are discharged. The Republic is, of course, at liberty to prefer a fresh charge if there is any purpose in doing so.

C

[zRPz]SHABANI MPIRI v WILBARDA TAIRO 1993 TLR 58 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Mwaikasu J

D MISCELLANEOUS CIVIL APPEAL NO. 7 OF 1992
7 February, 1992
Flynote

Rent Restriction Act - Protected tenant - Protected tenant need not enter a new agreement with the landlord - E Eviction must comply with provisions of the Rent Restriction Act, 1984, s 25(1)(e)(i).
Landlord and Tenant - Protected tenant - Eviction - Need to comply with the provisions of s 25(1)(e)(i) of the Rent Restriction Act, 1984.
-Headnote
F The respondent was a wife of a deceased tenant of the appellant. After the death of the tenant the appellant wanted the widow to enter into a new tenancy agreement or else be evicted from the premises. The Dar es Salaam Regional Housing Tribunal ordered eviction of the respondent. The Housing Appeals Tribunal, on appeal, reversed the decision and order of the Regional Housing G Tribunal, holding that the respondent was a protected tenant within the meaning of s 25(1)(a)(i) of the Rent Restriction Act, 1984. Dissatisfied with this decision the appellant appealed to the High Court.
Held: (i) Under the provisions of ss 3(1) and 25(1)(e)(i) of the Rent Restriction Act, 1984, the respondent, upon the death of her husband, who was the tenant of the appellant and with H whom the respondent lived as husband and wife in the appellant's house until the day of his death, automatically became a protected tenant;
(ii) Any attempt to evict her from the premises must comply with the provisions of section 25(1)(e)(i) regarding the provision of suitable alternative accommodation by the landlord.
Case Information
I Appeal dismissed.
1993 TLR p59
No case referred to. A
[zJDz]Judgment
Mwaikasu J: By this appeal, the appellant, one Shabani Mpiri, challenges the decision of the Housing Appeals Tribunal in its Appeal No 46 of 1992, originating from the Dar es Salaam Regional Housing B Tribunal Application No 317 of 1991. In its decision the Housing Appeals Tribunal reversed the decision of the Regional Housing Tribunal which ordered the eviction of the respondent, one Wilbarda Tairo, from the appellant's house by unanimously holding that the respondent, having been C the wife of the deceased one Tairo who was the appellant's tenant and lived with him in such house until the day of his death, was, upon the death of her husband, a statutory tenant as defined under s 3(1) of the Rent Restriction Act 1984, and therefore as such, a protected tenant under the provision of s 25(1)(a)(i) of the said Act, so that there was no need for her to enter a new tenancy D agreement with the appellant.
That could not sound just and reasonable to the appellant who is on record to have maintained before not only the lower appellate tribunal but before this court that the respondent ought to have entered a new tenancy agreement after the death of her husband, and that if there was such a law E that did provide such a protection as relied upon by the respondent, then he would not recognize such law, adding that if there was a law that required him in the

circumstances of this case to provide an alternative accommodation to such a widow if she is to be evicted, when such law, as it did not come from God, he would not recognise it either. F
It is such ostrich mindedness of the appellant that has led him to challenge such decision of the Housing Appeals Tribunal before this Court, arguing, in the main that the Housing Appeals Tribunal G had erred in law by so holding that the respondent was under the Rent Restriction Act 1984, automatically a protected tenant and that there was no necessity for her to enter a new tenancy agreement with him, the landlord. On the other ground that the Housing Appeals Tribunal did not adequately consider the allegation that the respondent had been guilty of contravening tenancy rules H for her alleged refusal to clean the backyard of the suit premises, that, in my view, was adequately considered by the lower appellate Tribunal. This court does not therefore, intend to address itself on the issue.
Now coming to the only legal issue raised in this appeal, which is whether under the provisions of s I 3(1) and s 25(1)(e)(i) of the Rent
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A Restriction Act 1984, the respondent, upon the death of her husband who was then the tenant of theB appellant and with whom the respondent used to live as husband and wife in the appellant's house until the day of his death, thereafter automatically became a protected tenant.
B Upon reading the definition of the word `Tenant' as provided for under s 3(1) of the Rent Restriction Act 1984 together with s 25(1)(e)(i) of the said Act, I am satisfied that this appeal has no substance. Under the law, the respondent is clearly as found by the Housing Appeals Tribunal, a protected tenant. Any attempt to evict her from the premises must comply with the provisions of s 25(1)(e)(i) regarding the provision of suitable alternative accommodation by the landlord. If the C appellant considers such provision of our law to be unjust, the only reasonable course for him to take is either to raise such complaint with his Honourable Member of Parliament, with a view of soliciting D the desired amendment or forward his memo with the law Reform Commission of Tanzania to have it looked into with a view of reforming it, if found to be so desirable. Otherwise he cannot stand in the way of the operation of the law. He may do so at his own peril.
E Accordingly I dismiss this appeal with costs.
1993 TLR p60
F
[zRPz]REV. CHRISTOPHER MTIKILA v THE EDITOR, BUSINESS TIMES & AUGUSTINE LYATONGA MREMA 1993 TLR 60 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Samatta JK

G CIVIL CASE NO. 47 OF 1992
26 March, 1992
Flynote

H Torts - Vicarious liability - Tort committed by a Minister in the course of official business - Whether civil action must be action against the Government - Government Proceedings Act 1967.

I Vicarious Liability - Government vicariously liable for torts committed by its servants - Whether the servant who has committed

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the tort is thereby absolved from liability. A

Vicarious Liability - Government Proceedings Act 1967 - Suits against the Government for torts committed by its servants - Minister sued personally for a tort committed in the course of official business - Whether a suit against the Government.

-Headnote

The plaintiff sued the defendants in defamation for words uttered by the second defendant, a B Government Minister, and published by the first defendant. For the second defendant, a preliminary point was raised and argued to the effect that because the alleged defamatory words, if they were at all uttered, must have been uttered by the second defendant in the course of discharging his C ministerial duties, he cannot be sued in his personal capacity; rather, the suit should be a suit against the Government in accordance with the Government Proceedings Act 1967.

Held: (i) By vicarious liability the master is liable for tortious acts or omissions of the servant and the two are joint tort feasors; either or both of them can be sued; D

(ii) Vicarious liability does not transfer the principal liability of the servant to the master;

(iii) By vicarious liability an employer is vicariously liable for torts committed by his servant; but that does not absolve the liability of the servant for the tort he has committed; E

(iv) Suing the Government under vicarious liability does not confer immunity on the servant of the Government who actually committed the tort; the right to sue the servant is not affected by the right to sue the master;

(v) No provision of the Government Proceedings Act 1967 or any other legislation takes away F the common law right to sue a Government servant who commits a tort in the course of his official duties;

(vi) There is no law conferring immunity upon Ministers or public officials from being sued personally for torts they commit in the course of their official duties; when they are so sued in their personal capacity, it is not a suit against the Government; G

(vii) The vicarious liability of the master and the initial liability of the servant are two different branches of liability.

Case Information

Preliminary point rejected with costs.

Cases referred to:

1. Lanchbury and Others v. Morgans and Others [1971] 2 WLR 603. H
2. Young v. Edward Box & Co. Ltd [1951] 1 TLR 789.
3. Moris Sasawata v. Matias Malieko, [1980] TLR 158.

4. Ismail G. Lazaro v. Josephine Ngomera, Court of Appeal of Tanzania at Mbeya, Civil Appeal No. 2 of 1986 (unreported).

5. Lucas Matafu v. Hon. M.M. Songambele [1977] LRT, n. 10. I

F. Werema/Mwidunda for the second defendant.

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[zJDz]Judgment

A Samatta JK: This is an action for damages for defamation. In his plaint the plaintiff, Rev Christopher Mtikila, avers, inter alia, that the second defendant, Mr Augustine Lyatonga Mrema, maliciously uttered defamatory words to the first defendant, the Editor of `Business Times', a B newspaper circulating in Tanzania and beyond, the substance of which was that the plaintiff was plotting to kidnap him (the second defendant) using foreign mercenaries. The second defendant is the Minister of Home Affairs in the Government of the United Republic of Tanzania. The plaintiff C further alleges in the plaint that on 18 October 1991, the first defendant maliciously and without just cause published in his newspaper these words. He is claiming from both defendants, among other things, damages in the sum of Shs 250 million.

D When, on 10 April 1992, the case was called, Mr Werema, appearing for the second defendant, raised a preliminary point of law. I hope I am not misrepresenting or failing to do justice to the learned State Attorney if I seek to summarise his contentions as follows: since the alleged defamatory words, if they were at all uttered, must have been made in the course of discharging his ministerial duties, E the second defendant cannot in law be sued in his personal capacity. According to counsel, the only option open to the plaintiff in this case is to sue the Government of the United Republic after seeking and obtaining the necessary consent of the Minister responsible for legal affairs, under the provisions of s 6 of the Government Proceedings Act 1967. The second defendant can be sued in his personal F capacity in this case only if, to use Mr Werema's own words, the Government has abandoned him, the second defendant. Counsel hastened to add that no such abandonment has taken place. The plaintiff, who appeared in person, contended; citing several authorities, that, as a citizen he has a right in law to sue in tort a person, who is a State Minister, in his personal capacity and that that right G is not qualified.

There can be no doubt that Mr Werema's argument raises a point of considerable interest. Before I proceed further, however, I should, I think, quote s 6 of the Government Proceedings Act 1967, as H amended by the Government Proceedings (Amendment) Act 1974, heavily relied upon by Mr Werema in his not uninteresting argument. The section reads:

`6. Notwithstanding any other provision of this Act, no civil proceedings may be instituted against the Government I without the previous consent in writing of the Minister:

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Provided that no such consent shall be necessary for the making of the Government a party to any interpleader A proceedings.' (The term `Minister' is defined in s 2(1) of the Act as meaning the Minister responsible for legal affairs.)'

I wish to make it perfectly clear that in dealing with the preliminary point, I assume, without deciding, two things: B

1. The Government Proceedings Act (hereinafter referred to as `the Act') is, insofar as it purports to restrict the right of a person to sue the Government, constitutional, that is to say, C it does not offend any of the provisions of the Constitution of the United Republic of 1977 as amended (hereinafter referred to as `the Constitution').

2. Mr Werema, who is employed as a State Attorney in the Attorney-General's Chambers, is entitled in law to represent the second defendant in this case. D

Having made those assumptions, I proceed now to consider the merits or otherwise of the preliminary point.

The doctrine of vicarious liability, whereby the master or principal is liable for tortious acts or E omissions of his servant or agent, committed in the course of the servant's or agent's employment or agency, being part of the common law, is undoubtedly, part of the law of this country. What is the policy underlying that doctrine?

Although there is no unanimity among legal scholars and judicial authorities as regards the right F answer to that question, I confess that I am greatly attracted, if I may respectfully say so, by the answer which Lord Denning MR gives to that question in Lanchbury and Others v Morgens and Others (1).

The Master of the Rolls poses the question and proceeds to answer it. It would be presumptuous on G my part to attempt to improve on his language. He says at 606:

`What is the basis of this doctrine of vicarious liability? To answer it, I would first ask: what does "vicarious" mean? I turn to the Shorter Oxford English Dictionary, 3rd ed (1944), Vol II. It means one "that takes or supplies the place of H another . . ." So vicarious liability means that one person takes the place of another so far as liability is concerned. Familiar instances are where the master shoulders the lability of his servant; or the principal shoulders the liability of his agent; and so forth. Whenever the law imposes vicarious liability, it does so for reasons of social policy - reasons which commend I

A themselves to the people at large. If a servant injures another by his negligence, his master should make good the loss. It does not matter whether the servant or agent is acting for the benefit of his master or principal, or not. Suffice it that the master or principal has put him in a position where he may do injury to another; and should be liable for B the way in which he conducts himself therein. It is true that the master or principal is not personally at fault. But it is only that he should be made vicariously liable. Otherwise it would mean that the injured person would get no redress: for, more often than not, the servant or agent has not the means to pay: whereas the master or principal has the means: or, at any rate, ought to insure against the liability so as to get the means to pay. In this way the C innocent victim is not left to bear the whole loss himself. It is distributed amongst the community in a way that is fair to all.'

It seems clear from this passage that the master or principal and his servant or agent are in law joint D tortfeasors. Either or both of them can be sued, for, the liability of the master or

principal depends on the liability of the servant or agent. The proposition that the doctrine of vicarious liability does not transfer the principal liability of the servant or agent to the master or principal is amply supported by authorities. In Stephen's Commentaries on the Laws of England, 21st ed, Vol II, there is the following E passage at 445:

`. . . the liability of the superior for the tortious acts of his subordinate in no way exempts the latter from personal liability to the party injured. The question is not: "which is liable?" but "Are both liable?". In many cases, of course, F the liability of the subordinate is of little practical value; because he is, in popular language, `not worth powder and shot'. But this is by no means always true.'

G In Halsburys Laws of England, 3rd ed, Vol 25, at 546, the learned authors deal with the question concerning the liability of the servant as follows:

`A servant who commits a tort is, as a general rule, liable in damages to the person injured thereby, and his liability H is not affected by the existence of a contract of service, or, where he commits the tort in the course of his employment and within the scope of his authority, by the existence of the corresponding liability of his master for the same tort, since he is the actual tort easer.'

I The learned authors of Halsburys Laws of England, 3rd ed, vol

37, deal with the point in two passages at 135 and 136. The passage at the former page reads: A

`The person who actually commits a tort is in general liable although in committing it he is acting as servant of another person, and although he has no reason to know or suspect that the act is wrongful, unless the act is incapable of being regarded as a tort in the absence of actual or imputed knowledge.' B

and that on 136 reads as follows:

`Each of two or more joint tortfeasors is liable for the entire damage resulting from the tort, subject to any C contributory responsibility of the injured persons. Persons are liable as joint tortfeasors where the act giving rise to the tort is a joint act done in pursuance of a common purpose. In particular joint liability arises where an agent, including a servant, commits a tort whilst acting within the scope of his authority. In such cases agents are jointly D liable with their principals for the consequences of their torts.'

In Young v Edward Box & Co, Ltd (2) Denning LJ examined briefly the legal position of the servant or agent where the doctrine of vicarious liability is sought to be brought into play. He said at 793: E

`In every case where it is sought to make a master liable for the conduct of his servant the first question is to see whether the servant was liable. If the answer is yes, the second question is to see whether the employer must shoulder the servant's liability.' F

To return home, as eventually one must, I should, I think, quote what I ventured to say about twelve years ago in Moris A Sasawata v Matias Maleko (3) and, later, quote what the Court of Appeal said G in I G Lazaro v Josephine Ngomera (4). In Sasawata's case I said, at 160:

`I have always understood it to be the law of this country that, as a general rule, the actual perpetrator of an act which in law turns out to be a tort is personally liable for damages irrespective of on whose behalf or for whose benefit he did the act and irrespective of the fact that he gained nothing personally. That law is, I think, in harmony with H common sense.'

As I shall, I hope, presently sufficiently demonstrate, I am bound to adhere to those words. In Lazaro's case (supra) the appellant was I

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A aggrieved by a decision of this Court (Mroso J) whereby a decision of the Resident Magistrate's Court of Mbeya awarding the respondent, a woman constable, damages for defamation against the appellant, who was a Regional Police Commander at the material time, for calling the former at a parade a prostitute. The suit was filed against the appellant in his personal capacity. In the Court of B Appeal it was contended on behalf of the appellant, relying on s 3(4) of the Act, that, the appellant could not be sued in his private capacity as he was acting in his official capacity at the time in question. The Court rejected that argument. Mustafa JA, in whose judgment the other members of C the Court concurred, said, at 2 of the cyclostyled judgment:

`With respect, I am astounded by this contention. Section 3(4) of the Act 16 of 1967 merely renders the Government civilly liable vicariously for acts done by its servants in the course of their official duties. In matters of tort, a tortfeasor, D the person who commits a tort, is always primarily liable. An employer is vicariously liable if his servant commits a tort in the course and within the scope of his employment. That does not absolve the liability of the servant for the tort committed. It only means that the employer is also liable as the tort was committed when the servant was supposed E to be acting in place of or for the employer whose act it becomes.'

To distinguish this case from the case now before me requires, in my respectful opinion, the labours of Sisyphus and the sophistry of a Roman jurist. Mr Werema sought to meet the impact of that case F by contending that in that case, unlike in the instant case the Government had `abandoned' the appellant by refusing to grant its consent to be sued. With profoundest respect, I can see nothing in the judgment of Mustafa JA, which suggests, even remotely, that the said abandonment played some G part in the outcome of the appeal. On the contrary, it seems patently clear from the passage I have quoted that it was the opinion of the Court that the ability of a victim of a tort to sue the Government does not confer immunity from suit on the servant or agent of the Government who actually H committed the tort. In other words, whether or not the victim succeeds to secure the consent of the Government to sue it, his right to sue its servant or agent is in no way affected.

Mr Werema also sought to rely on Lucas Matafu v Hon M M Songambele (5) in his gallant attempt to persuade me to hold that the plaintiff's action against the second defendant is incompetent in law. In I my settled opinion, that case is no authority for the proposi-

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SAMATTA JK

tion which the learned advocate has advanced in the instant case. That case was an application for A an order directing the respondent to re-open the appellant's bar which the respondent had ordered, in his capacity as a Regional Commissioner, to be closed. The respondent was cited in his personal capacity. Mfalila C (as he then was) held that was an error in law. He said, at 45: B

`The third difficulty relates to the competency of this application. I take it that for the purpose of the Government Suits Ordinance Cap 5 this application is a suit. It is alleged in the affidavit that the respondent Songambele closed the applicant's Bar and tenantable premises. I cannot imagine how the respondent could have done this in his personal capacity. He must have used his authority as a Government Officer to effect whatever he did so that the final C responsibility lay with the Government. For instance if indeed the respondent closed these two premises, and he were either transferred or removed from office tomorrow, he would not as Songambele have the authority to re-open them even if he wanted or was ordered to. These premises were therefore closed by orders of the Government and D if any redress is needed it must be sought against the Government. The procedure for getting civil remedies against the Government is provided in the Government Suits Ordinance, and this must be complied with before this Court can assume jurisdiction. Since this was not done, this Court has no power to make any order against the E Government.'

The application was dismissed. Clearly, that case is distinguishable from the instant case. In that case the `action' was not grounded in law of torts; the appellant was not seeking damages for F wrongful closure of the bar. What he was seeking was, in effect, an order that the Government allow the bar to re-open. As rightly pointed out by Mfalila J, that order could be issued only against the Government. In any case, if my understanding of Mfalila J's judgment is wrong, that judgment cannot G be followed in view of the existence of a judgment of a higher court holding the contrary. The action in the instant case is grounded in tort, and, for reasons I have given, it is my opinion that it was not necessary in law for the plaintiff to institute proceeding against the Government.

Unless this Court is compelled by a statutory provision which alters the common law principle, it H cannot turn the plaintiff away. Is there any such a provision in our law? To that question I now turn my attention. It is an elementary rule of law that the common law cannot be altered by the legislature except in express terms or by clear implication. In my view, there is no provision in the Act (the I Government Proceedings Act) or in any other legislation - includ-

A ing the Constitution - which expressly or by necessary implication takes away the right of a citizen or other person enjoying the protection of the law of this country to sue a Government's servant or agent who, in the course of his official duties, has allegedly committed a tort against him. Section 6 of the Act was not, in my settled opinion, intended to, and did not cause such a change in B the law. I take leave to express some doubt, with respect, whether if such a provision existed it would pass the test of constitutionality. As the law currently stands, there is no legislation which confers immunity, qualified or otherwise, upon ministers or public officials

from being sued in their C personal or private capacities for torts alleged to have been committed by then in the course of their official duties. It should be distinctly understood that a suit in tort against a person who happens to be a minister or public official is not in law bad if the alleged tort was committed in the course of his D official duties, a suit against the Government. One does not, in such a suit, require the consent of the Government (the Minister responsible for legal affairs) to institute the proceedings. Save as provided in law, a person cannot be a tortfeasor and yet not be liable to a suit. Neither under the Constitution nor under any other law do ministers enjoy exemption from civil proceedings. Like in the case of E private persons, vicarious responsibility and initial liability are two different branches of liability. Apart from any legislative enactment, there is a right of access to the courts of law in every citizen and in every stranger within the country. That right is a fundamental one: it is jealously guarded by courts.

F In spite of his very strenuous argument, Mr Werema has not come within miles of persuading me that there is merit in that argument. It is my view in this case that the plaintiff is, for reasons I have endeavoured to express, entitled in law to sue the second defendant in his (the second defendant's) private capacity.

G It is tempting to part with the case there, but I think it proper to say this: the question whether the alleged publication is defamatory and whether the defendants are liable as allowed or at all is a matter which will be decided by the Trial Court. What I was concerned with in this ruling was solely H whether in this case the plaintiff is precluded by law from suing the second defendant in his personal or private capacity. That is the question which I have endeavoured to answer in this ruling.

I The preliminary point fails and is consequently rejected with costs.

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[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v NYANGETA SOMBA AND TWELVE OTHERS 1993 TLR 69 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Makame JJA and Omar JJA, and Mapigano Ag JA

CRIMINAL APPEAL NO. 53 OF 1990 B

14 July, 1992

(From the decision of the High Court of Tanzania at Musoma, Mwalusanya, J.) C

Flynote

Criminal Law - Defence of alibi - Requirement of notice to Court and the prosecution - Form of such notice. D

Criminal Law - Identification of accused - Huge crowd, commotion of the moment and charged atmosphere - Reliability of identity evidence.

-Headnote

The Director of Public Prosecutions appealed to the Court of Appeal of Tanzania against the decision of the High Court of Tanzania at Musoma acquitting thirteen persons who were charged with murder. E The learned Trial Judge's basis for acquittal was insufficiency of evidence of identification of the deceased's assailants from a huge crowd characterized by commotion of the moment and a charged atmosphere. At the trial, all the respondents raised the defence of alibi which the Trial Judge accepted. At the preliminary hearing all the respondents told the High Court that they were elsewhere F at the time when the murder of the deceased was committed. Six respondents gave particulars of their alibi the rest did not. The appellant argued that the Trial Judge was wrong to accept the defence of alibi because no notice of intention to rely on alibi was given to the Court and the prosecution in terms of s 194(4) of the Criminal Procedure Act, 1985. G

Held: (i) There was in this case sufficient notice of intention to raise the defence of alibi within the meaning of section 194(4) of the Criminal Procedure Act, 1985, in respect of the 6th, 7th, 8th, 10th, 12th and 13th respondents;

(ii) Although no form of the notice has been prescribed the notice must furnish sufficient H particulars of the alibi and the notice must be given before the main hearing;

(iii) In respect of the rest of the respondents the Trial Judge had discretion to apply the provisions of subsection (6) of s 194 of the Criminal Procedure Act, 1985, and give their alibis some weight;

(iv) Given the uncertainty about whether the deceased was already dead when he was set afire I and the other materials in the record, only

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A those people who assaulted and burned the deceased or those who facilitated or encouraged the assault and the burning could be convicted of murder;

(v) Given the huge crowd, the commotion of the moment and the charged atmosphere, reliability of the identity evidence of the three witnesses was doubtful.

Case Information

B Appeal dismissed.

No case referred to.

Malamsha, for the appellant.

Rugarabamu, for the respondents.

[zJDz]Judgment

C Mapigano, Ag. J.A., delivered the following considered judgment of the court:

These thirteen respondents were jointly charged with the murder of one Karabani Mbarae contrary to D s 196 of the Penal Code. The case came for trial in the High Court at Musoma before Mwalusanya J. In a judgment delivered on 6 October 1989, the learned Judge acquitted all of them. The Director of Public Prosecutions is appealing against that judgment and on his behalf Mr Malamsha, learned E State Attorney, has filed four grounds of appeal. In the course of his address before us, however, Mr Malamsha dropped the second and the fourth grounds.

None of the respondents could be traced for normal service and so a substituted service was F ordered and effected by the publications of the notice in the Uhuru newspaper. In spite of that

exercise none of them appeared when the appeal was called on for hearing. But Mr Rugarabamu, learned Advocate, resisted the appeal on their behalf on a dock brief.

G Karabani Mbarae was killed on 2 December 1987 at Nyegina in Musoma District in very cruel and dreadful circumstances, and he is referred to herein below as `the deceased'. Related to his killing was the death of another man called Maudi Magesa in the same village a few days back. The divination of a fortune-teller whom some of the villagers consulted had it that Maudi Magesa was not H actually dead but had been bewitched and transformed into a zombi by the deceased and PW5 Masatu Esagara. This divination was made public at a large gathering in the morning of 2 December 1987, and in great passion the gathering resolved that Karabani and PW5 be apprehended and tried I by the Baraza la Jadi which we understand to be a Sungusungu organ.

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MAPIGANO Ag JA

PW5 got wind of what had transpired at the meeting and he slipped away from the village and went A to the police station at Musoma to report the incident. In a smouldering rage the multitude went to and stormed a certain building referred to in the evidence as `the milk house' where the deceased was attending another meeting. The crowd pounced upon the deceased and took him to the home of B PW5. He was thoroughly belaboured on the way and he was in a very hopeless condition when he arrived at the home of PW5. Indeed, it is quite possible that he was then dying.

When the crowd discovered that PW5 had vanished they decided to and actually did set the deceased afire, and it is quite possible that the deceased was then already dead. When PW5 came C back in the company of policemen the deceased had been burnt beyond recognition and but for the intervention of the police PW5 would probably have met the same fate.

There was no dispute about the fact as above stated. The identity of the deceased's assailants was D the main point in dispute and the defence which was common to all the respondents was alibi. In the third ground of appeal the Trial Judge is faulted for `upholding' that defence. Mr Malamsha contended that the judge was wrong to give weight to the alibis, because, he said, none of the respondents had given any notice in terms of s 194(4) of the Criminal Procedure Act 1985. Mr E Rugarabamu thought otherwise.

On 30 August 1989, at the preliminary hearing all the respondents told the High Court (Munyera J) that they were elsewhere at the time when the murder of the deceased was committed. But none F except the 6th, 7th, 8th, 10th, 12th and 13th respondents gave any particulars of the alibi.

It is provided by ss (4) of s 194 that:

> `Where an accused person intends to rely upon an alibi in his defence, he shall give to the Court and the prosecution notice of his intention to rely on such defence before the hearing of the case.' G

No form of the notice envisaged by this provision has been prescribed, but the view we take is that the notice must furnish sufficient particulars of the alibi so as to enable the prosecution to verify the H truth of those particulars and if necessary assemble evidence in rebuttal, and that

the notice should be given before the main hearing. In our opinion there was in this case sufficient notice of intention to raise the defence of alibi within the meaning of the above subsection in respect of the 6th, 7th, 8th, I 10th, 12th and 13th respondents.

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MAPIGANO Ag JA

A Subsection (6) of that section provides that:

If the accused raises a defence of alibi without having furnished the particulars of the alibi to the Court or to the prosecution pursuant to this section, the Court may in its discretion accord no weight of any kind to the defence. In respect of the rest of the respondents the Trial Judge had discretion to apply this subsection and give their alibis B some weight as he did.

There was a body of evidence which established that there existed a common intention among a number of people in the crowd to assault and kill the deceased. The Trial Judge directed himself `that C only those accused persons who had been identified as having taken part in the burning of the body of the deceased, and those who helped to collect grass and firewood for burning the deceased, could be convicted of murder'. Given the uncertainty about whether the deceased was already dead when he was set afire and the other materials in the record, the view we entertain is that only those D people who assaulted and burned the deceased or those who facilitated or encouraged the assault and the burning could be convicted of murder.

E The allegation was that the respondents shared the common intention to kill the deceased. The central thrust of that allegation stemmed from three relatives of PW5 the other sorcerer suspect, ie PW4 Kisika the son of PW5, PW7 Masasi a member of PW5's household, and PW8 Sabe, his cousin.

F PW4 gave an account of how a crowd descended on the home of PW5 twice on that fateful day. The crowd first came at around 10 am searching for PW5. The crowd left when they were told that PW5 had travelled to Musoma. An hour or so later the crowd returned to that place with the G deceased. Heavy blows were rained on the deceased and then the burning followed. This witness implicated all the respondents in the killing except the 6th, 8th and 11th respondents.

PW8 saw seven respondents among the multitude, ie the 1st, 2nd, 3rd, 4th, 7th, 10th and 13th. He H observed that the deceased had been beaten up. He left the place and before long he heard a voice announcing with content `that the witch is dead, he should be burned down'. He next saw the first respondent collecting firewood.

As for PW7, he stated that he saw the 1st, 2nd and 8th in the mob that brought the deceased to the home of PW5. But he did not say what they did to the deceased. Under cross-examination the I following admission was elicited from him:

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`I ran away when the group approached Masatu's home. The family of Masatu went to the home of Malima for safety. A We all ran away from the charging group including PW4 Kisika. In truth I had not identified any of the offenders at the scene. I was far away hiding. Masatu's family all hid and no one eye-witnessed the killing.'

In acquitting the respondents the Judge expressed doubt about the reliability of the identity evidence B of the three witnesses, given the huge crowd, the commotion of the moment and the charged atmosphere. He also expressed doubt about the credibility of those witnesses. He was of the opinion that their evidence was riddled with contradictions and falsehoods. The appellant's first ground is that C the learned Judge `grossly erred in law and in fact for failing to evaluate and assess the evidence against the respondents'. With respect we disagree.

As correctly pointed out by Mr Rugarabamu, Mr Malamsha has not demonstrated to this Court how the Trial Judge failed to assess the evidence. We think that in the light of the disclosure of PW7 D quoted above, any prudent Court would have felt doubt that any of the three principal witnesses had actually witnessed the event. The evidence of PW7 showed clearly that all of them had fled from the home of PW5 in terror and gone into hiding. E

We are of the opinion, therefore, that the judgment appealed from was right, and must be affirmed. We accordingly dismiss the appeal.

1993 TLR p73

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[zRPz]ZAKAYO KUSAJA AND RICHARD MTALISI v PETRO TAPA AND MTIYANI GHAMBI

1993 TLR 73 (HC)

Court High Court of Tanzania - Dodoma

Judge Mwalusanya J

(DC) CRIMINAL APPEAL NO. 66 OF 1992 H

4 August, 1992

Flynote

Criminal Practice and Procedure - Appeals - Right of appeal by complainant - Whether complainant may appeal against acquittal of accused person. I

1993 TLR p74

-Headnote

A After a District Court acquitted the accused, who had been charged with cattle theft, the complainants decided to appeal to the High Court against such acquittal.

Held: (i) Under section 378(1) of the Criminal Procedure Act, 1985, only the Director of Public Prosecutions (D.P.P.) can appeal against an acquittal by a subordinate court;

B (ii) A complainant has no right of appeal to the High Court against an acquittal by a subordinate court.

Case Information

Appeal struck out.

No case referred to.

[zJDz]Judgment

C Mwalusamya J: The two respondents Petro s/o Tapa (1st respondent) and Mtiyani s/o Nghambi (2nd respondent) were acquitted of cattle theft contrary to ss 265 and 268 of the Penal

Code Cap 16 by the Dodoma District Court. Aggrieved by the acquittal the two complainants (now appellants) Mr Zakyo s/o Kusaja (1st appellant) and Richard s/o Mtalisi (2nd appellant) have now appealed to this D court.

It is my considered view that the appeal is misconceived. Under s 378(1) of the Criminal Procedure Act 9 of 1985 only the Director of Public Prosecutions (DPP) can appeal against an acquittal by a E subordinate court. A complainant has no right of appeal to the High Court against an acquittal by a subordinate court.

Perhaps the above provision goes against the constitutional provision under article 13(6)(a) of our F Constitution which provides for the right of appeal against any adverse decision of a court of law. However that would entail challenging the unconstitutionality of s 378(1) of the Criminal Procedure Act in a proper forum and when properly pleaded. As the situation stands, the two appellants have only to blow a muted trumpet. There is nothing I can do about it.

G In the event I hold that the appeal is misconceived and I strike it off the register. Order accordingly.

1993 TLR p75

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[zRPz]JIBU SAKILU v PETRO MIUMBI 1993 TLR 75 (HC)

Court High Court of Tanzania - Singida

Judge Mwalusanya J

CIVIL APPEAL NO. 48 OF 1992 B

13 November, 1992 - SINGIDA

Flynote

Customary Law - Clan land - Meaning of clan land

Customary Law - Clan land - Redemption of clan land - Limitation period. C

-Headnote

The respondent sought to redeem clan land many years after the limitation period had expired.

Held: (i) According to rule 2 of the Customary Law (Limitation of Proceedings) Rules, G.N. 311 OF D 1964, the limitation period within which to redeem clan land is 12 years;

(ii) When the respondent attempted to redeem his former clan land in 1989 he was already time barred as the twelve years from 1964 ended in 1976;

(iii) Clan land means land which has been inherited successfully without interruption from the E great grandfathers or from a grandfather by members of the same clan.

Case Information

Appeal allowed.

No cases referred to. F

[zJDz]Judgment

Mwalusanya J: This matter concerns the meaning of clan land and as to when it can be redeemed. Clan land means lands which has been inherited successfully without interruption

from the great grandfathers or from a grandfather by members of the same clan. The key words are without interruption. If a member of the clan sells or in any other way disposes of clan land without the G consent of the members of the clan, then the members of that clan can redeem it within 12 years - see the Customary Law (Limitation of Proceedings) Rules GN No 311/1964. If it is not redeemed within 12 years, then it is lost and it is no longer clan land. The said land becomes the property of the purchaser. H

The trouble in this case arose because both courts below and the parties did not appreciate as to when clan land can be lost. It was common ground at the trial that the grazing ground in dispute was originally the clan land of the respondent Petro s/o Miumbi. That was before the German Colonial I Administration. According to the

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MWALUSANYA J

A appellant Jibu s/o Sakilu, the land in dispute was bought by six heads of cattle from a member of the respondent's clan named Missaa s/o Kihinya and that was during the German Colonial Administration. Then appellant testified that they have been occupying that land as their clan land since then. It was in 1989 when a member of the appellant's clan one Mr Pangi s/o Kitio sold that B clan land for one bull to the respondent Petro s/o Miumbi who is not a member of their clan. So appellant filed a suit to redeem that land from the respondent. The respondent resisted the C redemption, contending that the himself had redeemed it when he paid a bull to Pangi s/o Kitio.

What is interesting is that the respondent and his other members of the clan, conceded at the trial that they lost their clan land in dispute during the German Colonial Administration. They said that a D member of their clan Missaa s/o Kihinya did not sell it as claimed, but that as their great grandfather had failed to pay poll tax to the German Colonial Administrators, he pledged the land in dispute to the grandfather of the appellant for a bull. Since that time the land in dispute has not been redeemed by the members of the appellant's clan. So respondent said that since he bought that land for a bull in E 1989 from Pangi s/o Kitio who is a member of the appellant's clan, then he had effectively redeemed their former clan land.

It will be seen from the above account that the parties in this case are in agreement that the respondent's clan lost ownership of that land during the German Colonial Administration. They did F not redeem it, until 1989 when they attempted to redeem it. They could not redeem it in 1989 as twelve years had already elapsed. According to rule 2 of the Customary Law (Limitation of Proceedings) Rules GN No 311/1964, they could only redeem that land within twelve years from G 1964. The twelve years from 1964 ended in 1976. So since 1976 the land in dispute became effectively clan land of the appellant's clan. When respondent attempted to redeem his former clan land in 1989 he was time-barred. So the Primary Court came to the correct conclusion though through a different route. The District Court was wrong in holding that clan land can be redeemed even after the expiry of 12 years.

H In the event this appeal succeeds. The decision of the District Court is set aside, while that of the Trial Court is restored. The appellant is allowed to redeem the land in dispute by refunding a bull to I the respondent. The appeal is allowed with costs. Order accordingly.

1993 TLR p77
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[zRPz]PETER NG'OMANGO v GERSON M.K. MWANGWA AND THE ATTORNEY GENERAL 1993 TLR 77 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J

CIVIL CASE NO. 22 of 1992 B
11 December, 1992 - DODOMA
Flynote
Constitution Law - Right of access to court to seek a remedy - Article 13 of the Constitution. C
Constitutional Law - Right of access to court and suits against the government - Requirement of ministerial consent to sue the government - Whether constitutional - Section 6 of the Government Proceedings Act 1967 and article 13(3) and (6)(a) and article 30 of the Constitution. D
-Headnote
The plaintiff sued the Principal of Mpwapwa Teachers' College who, being a public servant, applied to have the government joined as a co-defendant but his application was rejected. Then the Attorney E General applied to have the government joined as a co-defendant; this application was also rejected. But finally the government was, by third party notice, joined as 2nd defendant. A preliminary objection was then raised on behalf of the government to the effect that the suit was incompetent for want of consent of the Minister to sue the government, a requirement of s 6 of the Government Proceedings Act 1967. The plaintiff countered that s 6 of the Act was unconstitutional for infringing the right of free F access to court, and was therefore null and void.

Held: (i) The right of an individual to have free access to the courts is well recognized by the Constitution; the requirement of consent of the Minister before one can sue the government as imposed by s 6 of the Government Proceedings Act 1967 infringes in a big way the G constitutional right of free access to the courts for remedies;

(ii) The consent powers of the Minister under s 6 of the Government Proceedings Act 1967 are so arbitrary and oppressive, and not subject to any restraint or control against abuse that they cannot be saved as lawful by article 30 of the Constitution;

(iii) The provision requiring the Minister's consent to sue the government is so broadly drafted H tht it offends the doctrine of proportionality; it denies an effective and prompt remedy even to those with clear and genuine grievances against the government;

(iv) The requirement of ministerial fiat to sue the government defeats the spirit of the Government Proceedings Act 1967 by bringing back outdated notions which held that rulers I could do no wrong and could

A not be sued, and which have now been discarded by nearly all commonwealth countries;

(v) Obiter: it is inappropriate for the law to give citizens of one part of the United Republic, Zanzibar, better access to court to complain against the government than the rest of the citizens;

B (vi) Obiter: the requirement of ministerial fiat to sue the government militates against the principles of accountability, openness and transparency of the government, all of which go well with the recently re-introduced multi-party democratic system.

(vii) Section 6 of the Government Proceedings Act 1967 is unconstitutional and null and void.

Case Information

C Preliminary objection dismissed.

Cases referred to:

1. Attorney General v. Lesinoi Ndeanai & Another, [1980] TLR 214.
2. DPP v. Ally Haji Ahmed & Ten Others, CAT - Criminal Appeal No. 44 & 45 of 1985 D (unreported).
3. R v. Secretary of State for Home Affairs ex-parte Bhajan Singh, [1975] 2 All ER 1081.
4. Macauley v. Minister for Posts and Telegraphs, [1966] IR 345.
5. Shah v. Attorney General (No. 2) [1970] EA 523.
6. DPP v. Daudi Pete [1993] TLR 22

E 7. Maneka Gandhi v. Union of India [1978] 2 SCR 621.

8. Ong Ah Chuan v. Public Prosecutor [1981] AC 648.
9. Silver Case [1983] 5 EHRR 247.
10. Clarke v. Karika [1985] LRC (Const.) 732.
11. The Queen v. Big M. Drug Mart Ltd., [1986] LRC (Const.) 332.

F 12. Precunier v. Martinez [1974] 416 US 396.

13. Sunday Times Case, [1979] 2 EHRR 245
14. Johnson v. Chief Constable of the RUC, [1987] Q.B. 129.
15. Himid Mbaye v. The Brigade Commander [1984] TLR 294 (HC).
16. Shabani Khamis v. Samson Goa and Another, High Court of Zanzibar Civil Case No. 18 of G 1983 (unreported).
17. Khalfan Abeid Hamad v. Director of Civil Aviation, High Court of Zanzibar, Civil Case No. 20 of 1986 (unreported).
18. Rev. Christopher Mtikila v. The Editor, Business Time & Augustine L. Mrema [1993] TLR 60.

H Ndunguru, for the second defendant.

December 11, 1992.

[zJDz]Judgment

Mwalusanya J: The plaintiff Peter s/o Ng'omgango is a tutor at Mpwapwa Teacher's College. He filed I a suit against the principal of Mpwapwa Teacher's College one Mr Gerson M K Mwangwa claiming Shs 1,201,762/= as damages for malicious prosecution

1993 TLR p79

MWALUSANYA J

and defamation. The defendant applied to have the government joined as co-defendant simply A because he is a public servant but I rejected the application. Then the State Attorney i/c of Dodoma Zone Mr Mwambe, duly instructed by the Attorney-General applied to have the government joined as a co-defendant and again the application was rejected. I advised the defendant that the proper procedure was for him to apply for a third party notice so that the government is joined as B co-defendant. That he did and the government was finally duly joined as the 2nd defendant.

As expected, the 2nd defendant (the govt) in its written statement of defence has raised a preliminary objection to the effect that the suit is incompetent, for want of consent of the Minister for Justice C under the provisions of the Government Proceedings Act 16 of 1967. In his reply the plaintiff has raised a constitutional point to the effect that the Government Proceedings Act 16 of 1967 as amended by Act 40 of 1974 is unconstitutional and so void. He said that if offends arts 13(3), 13(6)(a) D and 30(3) of our Constitution and so it should be declared void under s 64(5) of the Constitution as well as s 5(1) of Act 16 of 1984. The Republic was represented by Mr Ndunguru, State Attorney while the plaintiff argued the point in person.

The State Attorney Mr Ndunguru conceded that the constitutional point in question was duly served E on him as required by s 17A(2) of the Law Reform (Fatal Accidents Misc Provisions) Ord Cap 360 as amended by Act 27 of 1991. So he said that he was quite ready to argue the point. F

The points raised by Mr Ndunguru were two-fold. First that, assuming that the right of an individual to have access to the courts is granted under arts 13(3), 13(6)(a) and 30(3) of the Constitution, yet the same have not been infringed by the Government Proceedings Act. He said that s 6 of the G Government Proceedings Act, which requires written permission from the Minister of Justice in order to sue the government was a mere procedural matter which did not take away the right to sue the government. He said that the right to sue the government is left intact. He contended that since it is H only a procedural matter, it does not infringe the right of access to the courts. He said that it is just like a procedure which is provided in the Civil Procedure Code that one cannot sue any defendant until he has filed a proper plaint in court or until he has given a proper notice to sue the defendant. In fine he argued that the requirement of a fiat from the Minister for Justice is not inconsistent with the right to have a free access to the courts. I

1993 TLR p80

MWALUSANYA J

A Secondly, Mr Ndunguru argued that even if the requirement of a ministerial fiat is taken to infringe the right of free access to the courts provided for in the Constitution, nevertheless he argued the Government Proceedings Act is saved by the derogation clause in article 30(1) and (2)

of the Constitution as it is in public interest. He said that it was in public interest for two reasons. First that B the restriction is necessary so as to avoid unnecessary harassment of the government so that it functions smoothly when serving the general public. He said that public policy requires that the government conduct its business smoothly without unnecessary harassments and impediments C otherwise the general public will not be served well. Secondly the State Attorney argued that if the High Court will declare this statute to be unconstitutional, the courts will be inundated with numerous cases against the government and the courts will not be able to cope with the flood of those cases. D So he said that the requirement of a ministerial fiat was in public interest under article 30(1) and (2) of our Constitution, so as to limit the number of cases going to court. And at the same time the government will be spared the embarrassment of being the defendant in frivolous and vexatious cases. He said that, that situation would not be healthy if the requirement of a ministerial fiat is E abolished.

The plaintiff replied by stating that the requirement of a ministerial fiat was not a mere procedural matter but substantively restricts the right to have free access to the courts. He continued to submit F that the Government Proceedings Act is not in public interest and so it is not saved by the derogation clause or claw-back clause. He said that since in every case where the government is the defendant, he said government would be fully heard and defended by a competent State Attorney, he G could not see any reason as to why the ministerial fiat should be imposed. He said that the government would not be prejudiced in any way if the ministerial fiat is taken away. He also argued that the requirement of a ministerial fiat is out of touch with the newly acquired multi-party democracy which stand for openness and transparency on the part of the government.

H Naturally the first question to be answered by this court is as to whether the right of free access to the courts for a remedy is recognised by our Constitution. It is my finding that the right of an individual for free access to the courts is recognised by our Constitution. First we have article 13(3) of our I Constitution which provides: `The Civil Rights, obligations and interests of every person

shall be protected and determined by competent courts of law.' And article 30(3) of our Constitution A provides that if one feels that his constitutional rights have been violated, he has the right to `institute proceedings for relief in the High Court'. Not only that we have article 13(1) of our Constitution which provides that all persons are entitled to the protection of the law which envisages that any person will B have a free access to the courts for a remedy. And finally we have article 13(6)(a) of our Constitution which provides for a right of a fair hearing by the court of law, when ones rights and obligations are being determined. The right to be heard includes the right to have free access to the courts to file a suit for a remedy. That was the interpretation by the European Court of Human Rights C in the case of Golder v UK (Judgment of 21 February 1975) in respect of article 6(1) of the European Convention for the Protection of Human Rights and Fundamental Freedoms (1950) which is worded in similar terms like our article 13(6) of our Constitution. That Court invoked a purposeful D construction instead of a

literal construction of the Constitution. That case is digested by a distinguished English jurist Mr Anthony Lester QC at 1063 of the Commonwealth Law Bulletin (1991) 17 CLB 1055 in his article titled `Preparing and Presenting a Human Rights Brief'. I adopt that E persuasive authority by the European Human Rights Court. The above account amply demonstrates that our Constitution recognises the right of an individual to have free access to the courts for a remedy.

The next question is whether the right to have free access to the courts for a remedy is infringed by F the mere fact that s 6 of the Government Proceedings Act 1967 requires a ministerial fiat before one files a suit in court. Counsel for the Republic Mr Ndunguru argued strongly to the effect that the constitutional right to have free access to the courts for a remedy is not infringed by the requirements of a ministerial fiat, because he said that was a mere procedural matter while the right to file a suit is left intact. That problem can only be answered by looking at the international human rights G instruments and other comparative jurisprudence. It is a general principle of law that the interpretation of our provisions in the Constitution have to be made in the light of jurisprudence which has developed on similar provisions in other international and regional statements of the law. That H was the view taken by Kyalali CJ in the case of AG v Lesinoi Ndeanai & Another (1) at page 222 where he said: `On a matter of this nature it is always very helpful to consider what solutions to the problems other courts in other countries have found, since basically human beings are the same though they may I

A live under different conditions.' The same view was repeated by the Tanzania Court of Appeal in the case of DPP v Ally Haji Ahmed & Ten Others (2) where the court emphasized that in interpreting the Constitution the courts have to take into account the provisions of the Universal Declaration of Human Rights (1948) and other treaties which Tanzania has ratified. That view is also in line with the B Harare Declaration of Human Rights issued at the end of a high level judicial colloquium of Commonwealth Judges on the topic of Domestic Application of International Human Rights Norms, convened in Harare, Zimbabwe between 19 and 22 April 1989. Our Chief Justice Hon Francis Nyalali attended that colloquium. In their declaration they endorsed the Bangalore Principles (1988) to the C effect that it is within the proper nature of the judicial process for national courts to have regard to international human rights norms (whether or not incorporated into domestic law) for the purpose of D resolving ambiguity or uncertainty in national Constitutions and legislation. On the same point see Maxwell on the Interpretation of Statutes (1969) 2nd ed at 183 as well as the judgment of Lord Denning MR in the case of R v Sec of State for Home Affairs ex-parte Bhajan Singh (3) at 1089. E Now Tanzania has ratified the following international and regional instruments which provide for the right of free access to the courts without any impediments: the Universal Declaration of Human Rights (1948) in article 8; the African Charter on Human and Peoples Rights (1981) in article 7(1) F which Tanzania ratified on 18 February 1984; the International Covenant on Civil and Political Rights (1976) in article 2(3) which Tanzania ratified on 11 September 1976. All those treaties or instruments are very specific that the right of free access to the courts should be without any

impediments, including the impediment of the requirement of a ministerial fiat. That was what was decided by the G European Court of Human rights in the Golder case (supra). The UN Human Rights Committee interpreting that right in the case of Wight v Madagascar case No 115/1982 held that a right of access to the courts is infringed not only when an individual is denied the right to file a suit, but also H when restrictions are imposed such that the right to file a suit is rendered illusory or is cumbersome (see at 45 of the Report of the Proceedings of the Judicial Colloquium in Harare, Zimbabwe 19-2 April 1989 published by the Commonwealth Secretariat in November 1989).

That is not all, as we have also comparative jurisprudence. Northern Ireland had the Ministers and I Secretaries Act of 1924 which was in pari materia with our Government Proceedings Act 1967 as it

required the consent of the Attorney-General before the government was sued. The Supreme Court A of Northern Ireland in the case of Macauley v Minister for Posts and Telegraphs (4) held that the provision requiring the consent of the Attorney-General was unconstitutional and void as it was in breach of the citizen's right to have access to the courts for a remedy. Nearer home we have the B case from Uganda, the case of Shah v Attorney-General (No 2) (5). The matter there concerned the provision of s 2(1) of the Local Administrations (Amendment) Act 2 of 1969 which imposed the requirement of a ministerial fiat before one could sue the government. Justices Jones, Mead and Wambuzi unanimously held that the provision in question was unconstitutional and void in that it C purported to deprive an aggrieved party of the protection of the law given by the Ugandan Constitution in article 8(2)(a) which is the equivalent of our article 13(1) and (3) of our Constitution. Moreover a very powerful Commission known as the Nyalali Commission in Book Three of its recommendations D at p 30 holds the view, that the requirement of a ministerial fiat is unconstitutional because it deprives an individual the right of a free access to the courts, and accordingly it recommended for its abolition.

In the light of the reasons enumerated above, I am unable to agree with counsel for the Republic Mr E Ndunguru that the requirement of a Ministerial fiat does not infringe the constitutional right of free access to the courts for a remedy. The right is infringed in a big way.

Granted that the requirement of a ministerial fiat infringes the Constitution, is it saved by the F derogation clause or claw-back clause in article 30(1) and (2) of our Constitution for being in public interest. The Tanzanian Court of Appeal in the case of DPP v Daudi Pete (6) held that a statute which infringes the basic human rights is not void if the Republic proves that it is in public interest. G The Tanzanian Court of Appeal made two guidelines as to which law which infringes the basic human rights may be saved by the derogation clause. First the law in question should make adequate safeguards against arbitrary decisions. Secondly the said law should not offend the H doctrine of proportionality or reasonableness - that is the law should not be too broadly drafted as to net the innocent and the offenders. I will discuss these two points seriatim.

The law which is alleged to have been saved by the derogation clause for being in public interest, I must have adequate safeguards against arbitrary deprivation of basic human rights. The Tanzania

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A Court of Appeal in the Daudi Pete (6) case quoted with approval the decisions of the Supreme Court of India in the case of Maneka Gandhi v Union of India (7) to the effect that any law which does not have adequate safeguards and effective control against arbitrary interferences by public authorities with the rights safeguarded is not `law'. A lawful `law' implies compatibility with the rule of B law. The Privy Council in the case of Ong Ah Chuan v Public Prosecutor (8) at 669-671 made a similar remark. Therefore it is not enough to have a `law' which does not have safeguards, because it is not `law' at all - see Prof H W R Wade in his book Administrative Law (1965) Oxford University C Press at page 37. And Chief Justice Francis Nyalali made a pertinent remark when addressing the legal community at the University of DSM in 1985 on the topic `The Bill of Rights in Tanzania' (1991) vol 8 DSM University Law Journal when he said at 2: `This overriding of rights and duties of the D individual by rights and duties of the community does not however entail arbitrary action on the part of the community or its institutions. As illustrated by the provisions of article 30(2) it has to be done according to law'. The European Court of Human Rights has also held in the case of the Silver case (9) that a `law' that infringes basic human rights without any adequate safeguards against arbitrary E action, is not `law'. Now a glance at the Government Proceedings Act 1967 will reveal that it is not a lawful `law' because it does not have any safeguards against arbitrary action by the Minister for Justice. The arbitrariness and oppressive nature of the Government Proceedings Act 1967 has been F amply documented - see Report of the Nyalali Commission, Book Three at page 30 and the LLM Dissertation of 1985 by law lecturer of the University of DSM Mr M K B Wambali titled The Tort Liability of the Government in Tanzania. The impact of the Government Proceedings Act 1967 on the rights of individual claimants see Mimeo at the University of DSM Library. First there is no appeal G against the decision of the Minister for Justice contrary to article 13(6)(a) of our Constitution. Secondly, there is all likelihood that the ministerial power may be grossly abused as the Act does not provide for restrictions of any type on the Minister. Thirdly there are no guidelines laid down for the H Minister to follow in exercising this power. We are all at the mercy of his idiosyncrasies. Fourthly there is no obligation imposed on the part of the Minister to answer the application and so Ministerial power may affect the period of limitation. Finally the consent has an extremely great likelihood of not I serving the ends of justice, for how come that the government is a judge in its own cause? The decision will always

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be at the expense of the individual rights. The procedure patently defends the ends of justice. A There can be no doubt that the Ministerial fiat requirements has been used by the government as a tool of oppression against the people it govern. That much has been documented by Mr

Wambali in B his dissertation. He found that one could hardly make out tangible principles by which the Minister for Justice was guided in reaching the decision whether or not consent should be granted. He found that in each case any plausible justification was made for either a grant or a refusal. In short the decisions were found always to be palpably arbitrary. Examples are cited in the thesis wherein C consent was refused simply because the Minister thought if the matter went to court a good quantum of damages would have been awarded by the courts to the claimant on merits. In other cases Mr Wambali found that in many instances the Minister reached his manifestly adverse decision without referring to any supporting legal authorities or basing them on incorrect points of law. Another valid D complaint he discovered was the length of time taken to deal with the applications. It usually takes an unnecessarily long time. He found that out of the 58 tort claims he studied, only 6 applications for consent were granted by the Minister, that is about 10 per cent; and it took the average of four years E to reach the decision either way.

Certainly that is an inordinately very long time to reach a decision, taking into account the fact that the period of limitation is three years for torts. The graphic account of Mr M K B Wambali can also be F seen in his paper he presented at the Seminar to Commemorate 25 years of the Faculty of Law, held between 20th and 25th October 1986 at the University of DSM titled `The enforcement of the Bill of Rights against the Government'.

Others to document the oppression rendered by the requirement of the ministerial fiat is Dr Chris G Maina Peter a lecturer at the Faculty of Law of the University of DSM in his article Five Years of the Bill of Rights in Tanzania Drawing a Balance Sheet published in the African Journal of International and Comparative Law - 4 RADIC (1992) pages 131-167 at 156-157 where he states: H

`The most conspicuous and frustrating among the rights denied to the citizen is the right to sue the government. It seems as if the government has resolved to protect itself. This protectionist attitude of the government is codified through the Government Proceedings Act 1967. This strategic legislation insulates the government from all claims I in a feudalistic manner. According to this law, anybody

A wanting to sue the government has first to seek permission from the same government through the Attorney-General. To get such permission is a tussle which takes time. In some cases it has taken years to get the holy permit. This is not an accident, it has a meaning. The time factor is intended to wear our the claimant and force B him to settle the matter out of court with the government. If he insists on proceeding with the case, then time will have taken its toll and it is likely that some of the key witnesses will have died, been transferred or simply forgotten what transpired in relation to the issue being litigated. The legislation is quite irrational. The cruelty of this sadism C reaches the climax when the applicant himself dies while waiting for the Attorney-General's permission to enable him to pursue his rights through the courts of law. This happened in the case of Soarion Bruno.'

Others who have made similar adverse remarks against the Government Proceedings Act 1967 D include Prof Issa G Shivji in his article State and Constitutionalism in Africa: A New Democratic Perspective (1990) vol 18 of the International Journal of the Society of Law page 381 at 401.

And as I said earlier there are no safeguards and effective control against any gross abuses that they E may be committed by the Minister for Justice. The State Attorney Mr Ndunguru must have been kidding when he submitted that the law in question is in public interest. To the contrary it is the public who are being oppressed. Mr Ndunguru should respect the maxim, no research no right to speak. It is my finding that as the Government Proceedings Act 1967 has no safeguards and effective control F against gross abuses as amply documented above, it is not a lawful `law'. It is void and unconstitutional.

It is also my considered view that the Government Proceedings Act 1967 offends the doctrine of G proportionality. This principle of proportionality requires that the means employed by the government to implement matters in public interest should be no more than is reasonably necessary to achieve the legitimate aims. In other words, the government must show that the restriction imposed on a H basic human right is required by a compelling social need and that it is so framed as not to limit the right in question more than is necessary or proportionate to achieve a legitimate objective. The doctrine is discussed by the Court of Appeal of Cook Islands in the case of Clark v Karika (10) and by the Supreme Court of Canada in the case of The Queen v Big M Drug Mart Ltd (11). And Mr I Anthony Lester QC in his article mentioned above at

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pages 1064-1065 quotes a number of cases decided by the Supreme Courts of many A Commonwealth countries which consider the principle of proportionality to be as well established to be part of the public law or administrative law. In the USA the principle of proportionality was recognised by the US Supreme Court in the case of Precunier v Martinez (12) at p 143. While the European Court of Human Rights has invoked that doctrine in outlawing laws going against basic B human rights in the case of Sunday Times Case (13) and the case of Silver Case (9). In England the doctrine of proportionality is discussed in Halsbury's Laws of England 4th ed vol 51 at para 2296 and see also the case of Johnson v Chief Constable of the RUC (14) at 151. In Tanzania the doctrine of C proportionality was expounded by the Tanzanian Court of Appeal in the DPP v Daudi Pete Case (6) wherein it is stated that the law being defended for being in public interest should not be too broadly drafted such that its provisions are capable of depriving personal liberty not only to persons who are considered to be dangerous, but even to persons who cannot be considered to be dangerous. They said the law should not be a rat-trap which catches both rats and humans without D distinction.

Now the Government Proceedings Act 1967 offends the doctrine of proportionality because it is so E broad such that it denies an effective and prompt remedy to all and sundry without distinction - even to those who have a clear and genuine grievance against the government. I see no compelling social need to have restriction to sue the government, whereby the rights of citizens are marginalised and F emasculated. The State Attorney Mr Ndunguru argued that the

courts will be flooded with cases when the government is allowed to be sued without fiat; and also that the government will not be able to function smoothly if frivolous and vexatious cases are freely allowed in courts against the government. Such arguments are preposterous and without substance. Nearly all countries of the G Commonwealth have done away with the requirement of a ministerial fiat, and they don't face such problems as mentioned by the State Attorney. In fact in one part of Tanzania, that is in Zanzibar, the right to sue the Government of the United Republic without a ministerial fiat is recognised and no H problems mentioned by the State Attorney are encountered there. In his article in the Journal of the Judges and Magistrates Association of Tanzania (1989) vol I page 1, the Hon Mr Justice Ramadhani (then Chief Justice of Zanzibar) mentions three cases in which the Union Government has been I sued without the fiat namely: Himidi Mbaye v The Brigade Commander of

A Nyuki Brigade (15); Shabani Khamis v Samson Goa & Another (16) and Khalfan Abeid Hamad v The Director of Civil Aviation (17). In Zanzibar all that one has to do before suing the government is to give a month's notice to the government. That is a sufficient and reasonable restriction against suing the government. The legislation in Zanzibar is in line with the doctrine of proportionality as it B does not limit the right of access to the courts more than is necessary or proportionate to achieve a legitimate objective. The law in Tanzania mainland is based on the unjustifiable protectionist attitude or fear that the government may be involved in uncontrolled litigation, thus ending in serious losses of C revenue. But that argument cannot hold water when one considers the high capability of the government to distribute the losses suffered through some fiscal measures, such as taxation.

The courts of course will always recognise that the state enjoys a margin of appreciation in D conforming their law and practice with the basic human rights. But the government does not enjoy an unlimited margin of appreciation. Ultimately it is for the Court to assess whether the reasons given to justify an interference with the basic human right are relevant and sufficient. In the case in hand the E government has failed to establish on a balance of probabilities that the requirement of a ministerial fiat is for a given pressing social need and that the restriction is framed such that as not to limit the right protected more than is necessary. In short the government has failed to prove that the restriction on the right to have free access to the courts is proportionate and closely tailored to the F aim sought to be achieved.

There is also another dimension. In view of the fact that Tanzanians of Zanzibar can sue the Union government without a ministerial fiat, while their counterparts in mainland Tanzania cannot do that, a G case is made out to the effect that the Government Proceeding Act 1967 infringes article 13(1) of our Constitution. That article provides: `All persons are equal before the law and are entitled without any discrimination, to equal opportunity before and protection of the law.' Now the impugned law is discriminatory of the citizens of mainland Tanzania just because of their place of origin - see article H 13(5) of our Constitution which defines what discrimination means.

As the law now stands the Tanzanians of Zanzibar are more equal than the Tanzanians of the mainland. That is not a healthy situation.

I The practice of the requirement of a ministerial fiat before one

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can sue the government, defeats the general spirit underlying the Government Proceedings Act A 1967. The statement of the objects and reasons of the Government Proceedings Bill of 1967 was said to be: `That in a modern democratic State, it is right that the government should be able to sue or be sued as if it were a private person of full capacity.' And that the Bill sought to reform the law B relating to civil proceedings in courts by or against the government, as the law hitherto in operation was thoroughly outdated - see Attorney-General Mr Mark Bomani in Hansard `Majadiliano ya Bunge 1967 - Mkutano ya Nane - 11 April to 18 April 1967 at 108'. In its Fundamental Objectives and C Directive Principles of State Policy the Constitution in article 9(1)(k) states that Tanzania is a democratic state. Then why did he government out of the blue in 1974 by Act 40 reintroduce the ministerial consent requirement when in 1967 it was stated to be undemocratic and outdated? Is D Tanzania not a democratic state now? And it is not axiomatic that the law in question is outdated? That law finds it root in ancient English Constitutional mythology about the divine nature of kingship - that the `King can do no wrong' and that `the King cannot be sued'. But that is an anachronism in a democratic state like Tanzania. Even in England itself the position changed since 1947 whereby a E citizen can sue the government as of right. And nearly all the Commonwealth countries have done away with the requirement of a ministerial fiat. Tanzania is an odd man out.

The requirement of a ministerial fiat militates against the principle of accountability and the often quoted principle of openness and transparency of the government. The Ontario Law Reform F Commission of Canada in its report headed Report on the Liability of the Crown, 1989 reported in the Commonwealth Law Bulletin vol 16 no 3 of July 1990 pages 855-859 said at 856. G

`The present law governing liability of the Crown, insofar as it still provides privileges and immunities not enjoyed by ordinary persons is inconsistent with popular conceptions of government: Crown immunities are particularly contrary to a deeply - held notion that the government and its officials ought to be subject to the same legal rules H as private individuals and should be accountable to injured citizen for its wrongful conduct. A key element of this concept is the fact that the application or ordinary principles of law to government is placed in the hands of the ordinary courts, who are independent of government and therefore capable of being relied upon to award an appropriate remedy to a person who has been injured by unlawful government action.' I

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A At the end of the day, the Ontario Law Reform Commission recommended the abolition of the requirement of the ministerial fiat, as it was also found to be inconsistent with the Canadian Charter of Rights and Freedoms.

In Tanzania under one party democracy, the spurious justification for having a requirement of the B ministerial fiat, was espoused by some party fundamentalists (Wakereketwa) who nursed the idea that the government under the leadership of the CCN party which had a `clear and correct ideology' had a greater public interest to preserve and a monopoly of what is good for the country and C therefore cannot be let to be scandalized in courts by individuals with impunity. However that view cannot prevail now with the advent of multi-party democracy which was ushered in, in July 1992. In a bid to expand democracy the people in a multi-party democracy will continue bit by bit to wrench D away the mask of invincibility and unimpenetrability that the government sought to wear for many years under one party rule - see the debates in Parliament during the passing of the 9th Constitutional Amendment Act of 1992. Thus the vulnerability of the government to give way for more democratic institutions and norms has now been exposed.

E In the final analysis, I find that s 6 of the Government Proceedings Act 1967 as amended by Act 40 of 1974 is unconstitutional and so void. I so declare under s 5(1) of Act 16 of 1984 as well as article 64(5) of the Constitution. For sure by this step, the CCM government will rejoice because in the 1990 F Election Manifesto, the said CCM government pledged to get rid of all the problems that plague the people (kuwaondolea wananchi mambo yote yanayowakera). The requirement of a ministerial fiat to sue the government was one of those matters that has been plaguing the people. Now this tool of oppression which the Tanu government in 1967 said it was undemocratic and outdated is gone G forever, and it is now part of the legal folklore destined for the dustbin. The Judiciary as an organ of the government has played its noble part to get rid of a matter that has been plaguing the people for far too long. It is pertinent to remark here that the government in the past and in this case had H insisted to be joined as a co-defendant not as a philanthropist wishing to bail out their distressed civil servant but for their own ulterior motives. They have been using the requirement of a ministerial fiat not as a shield to protect their own legitimate interests but as a sword to frustrate genuine claims. In I this case I told the State Attorney that the government's interests will be properly safeguarded if they merely provided legal representation to the defen-

dant but they refused, and insisted to be joined as co-defendants. In the case of Rev Christopher A Mtikila v The Editor, Business Times and Mr Augustine Lyantonga Mrema (18) the government tried to use that play of using the law as a sword to frustrate the plaintiff's claims, but it was nipped in the bud by Samatta JK who held that the government need not be joined as a co-defendant. In this B respect Dr Chris Maina Peter in his article - 4 RADIC (1992) page 131 (supra) graphically illustrates the point raised at 157 thus:

> `Practice indicates that even where a person in an attempt to avoid this requirement of getting government approval, decides to sue the government officer alone without joining the government, the government insists on being joined C as a respondent. Worse still, once the government is joined, then it invokes the requirements of the Government Proceedings Act 1974. Permission must be sought although the government has joined the proceedings at its own

request. This is exactly what happened in the case of Patrick Maziku v G A Sebalili and Eight Others: Tabora High.' D

However in this case the play has boomeranged. The government has been hoisted by its own petard.

Be that as it may, in the event the preliminary objection raised by the Republic is dismissed. The suit E will proceed to trial as scheduled. Costs in the cause. Order accordingly.

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[zRPz]TRANSPORT EQUIPMENT LTD v D.P. VALAMBHIA 1993 TLR 91 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Makame JJA, Kisanga JJA and Ramadhani JJA

CIVIL REFERENCE NO. 7 OF 1992 H

12 February, 1993

(From the ruling and decision of a single judge of the Court of Appeal of Tanzania at Dar es Salaam, Mfalila, J.A.)

Flynote

Court of Appeal Rules - Notice of Appeal - Service of Notice of Appeal out of time - Reasons for which court may I allow service of notice of appeal out of time.

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-Headnote

A This was a reference from the ruling of a single judge of the Court of Appeal of Tanzania refusing to extend time within which the applicant could serve the respondent with a copy of the notice of appeal. The applicant advanced two sets of reasons on the basis of which he prayed the Court to grant the application. First were extraordinary circumstances at the trial which merit the attention of B the Court of Appeal. Secondly, that the intended appeal would involve important points of law. The Court of Appeal considered the two grounds.

Held: (i) There are no extraordinary circumstances meriting the attention of this Court except perhaps a display of the lack of coming to grips with the rules;

C (ii) When the point at issue is one alleging illegality of the decision being challenged, the Court has a duty even if it means extending the time for the purpose to ascertain the point and, if the alleged illegality be established, to take appropriate measures to put the matter and the record right;

D (iii) The points of law submitted in this case have not succeeded to put in doubt the legality of the ruling by the judge;

(iv) What is glaring to the eye here is sheer negligence of the advocate, which is not a sufficient reason to extend time;

Case Information

Reference dismissed.

E Cases referred to:

1. Abdulatiff v. Saada Mohamed, H.C., DSM, Misc. Civil Appeal No. 20 of 1988 (unreported).
2. Kidaha Rashid v. Nasser Mohamed Mbaraka, HC, DSM, Civil Case No. 3 of 1982 (unreported).
3. Abdulhusein Bodalbhoy v. Marekwa, 5 ZLR 44.

F 4. Air Caterers Ltd. v. Air Tanzania Corporation, HC, DSM, Civil Case No. 223 of 1989 (unreported).

5. Continental Agencies v. AC. Berrill & Co. Ltd, [1971] EA 105.
6. Manners v. Pearson and Son [1898] 1 Ch. 58.
7. Theodora v. Gordon, HC, Arusha, Civil Case No. 70 of 1984.

G 8. Milliangos v. George [1976] AC 443.

9. Principal Secretary, Ministry of Defence v. D.P. Valambhia [1992] TLR 185.
10. The Commissioner of Transport v. The A.G. of Uganda and Another [1959] EA 329.

H Mbuya, for the applicant.

M.G. Maira and M.N. Marando, for the respondent.

[zJDz]Judgment

Ramadhani, J.A., delivered the following considered judgment of the court:

I This is a reference from the ruling of Mfalila JA refusing to extend

time within which the applicant, Transport Equipment Ltd (hereinafter referred to as TEL), could A serve the respondent, D F Valambhia (hereinafter referred to as Valambhia), with a copy of the notice of appeal.

It has not been disputed that TEL was dissatisfied with the ruling of Rubama J on 12 February 1991 and so they filed a notice of appeal on 19 February 1991 but no copy of that was served on B Valambhia. It is common knowledge, in this litigation, that Valambhia has retained two advocates: Mr Maira and Mr Marando. The learned counsel for TEL, Mr Mbuya, admits that two copies of the notice of appeal were put in one envelope which was then addressed to Mr Marando but was never C dispatched and that it was seen lying in his (that is Mr Mbuya's) Chambers on 23 April 1991 when a copy of the notice of motion of Valambhia seeking to strike out that notice of appeal was served on him. It is further not contested that despite that discovery, Mr Mbuya did not immediately file a notice of motion to extend time within which to serve a copy of the notice of appeal on Valambhia. On the D contrary, such notice of motion was filed six months later, on 23 October 1991, when the notice of motion of Valambhia to strike out that notice of appeal had already been set down for hearing before Omar JA. E

Before us TEL was represented by Mr Mbuya assisted by Dr Ford, learned advocate from Ireland who was admitted on a special licence under s 39(2) of the Advocates Ordinance. For Valambhia, there were the same two counsel: Mr Maira and Mr Marando. F

Both advocates for TEL instead of pointing out to us the errors of the single judge, went to a considerable length arguing their intended grounds of appeal. We tolerated that amid the repeated objections from the learned counsel for Valambhia, simply because we are solemnly aware of the gravity of this reference purely owing to the colossal sums involved and the obvious fact that our G word is final.

On behalf of TEL we were given two sets of `sufficient' reasons to extend them. The first set was on some extraordinary circumstances at the trial which merit the attention of this Court. The second set catalogued important points of law which, it was argued, should override the accidental slip in H observing the Rules of this Court.

As for the extraordinary circumstances at the trial, Mr Mbuya pointed out that in the High Court Civil case No 210/89, TEL, who was the plaintiff, was ordered to file a reply to the written statement of defence of Valambhia and also to file a written statement of defence to the counter-claim of I Valambhia. That was to be done

A by 25 January 1991 and hearing was set for 1 February 1991. However, as TEL is registered in Ireland and has its offices there, and also because of the illness of its Managing Director, that was not possible. Mr Mbuya said that his application for an adjournment by a letter to the Registrar of the High Court found no purchase. His renewed efforts on the day set for hearing were also barren of B results. The learned Trial Judge adjourned the proceedings to 12 February 1991 for his ruling in which, Mr Mbuya explained, he refused the application for adjournment, dismissed the suit and granted the counter-claim. Mr Mbuya observed that the application was rejected because of two C reasons. One, the nature of the illness of the Managing Director was not disclosed in the medical certificate tendered. Two, Mr Mbuya complained, the learned judge, suo motu, compared the signature on the letter attached to the medical report, to the other signatures in other documents in D the case file and found them different and on that basis rejected the report as a concoction. Mr Mbuya lamented that he was not given an opportunity to explain the apparent difference. He also argued that the learned judge ought to have granted the adjournment with costs. Then as to the dismissal of the plaint, Mr Mbuya protested that he should have been given an opportunity to prove E his case and likewise, he claimed, he should have been allowed to contest the counter-claim even without filing a written statement of defence.

On the other hand Mr Maira submitted that the application for adjournment was resisted on two F grounds. First, the past conduct of Mr Mbuya in this litigation did not portray him to be serious. Mr Maira cited a number of examples of this. Second, Mr Maira said that Mr Mbuya could not even meet the challenge to produce a draft written statement of defence awaiting the signature of the Managing G Director. Mr Marando added that the date 1 February 1991 was not for hearing the suit and not for praying for an adjournment. Mr Marando pointed out further that under O VIII R 11(1) of the Civil Procedure Code, 1966 (hereinafter referred to as CPC) the written statement of defence to the counter-claim was to be filed within twenty-one days of service which was 21 January 1991. H However, Mr Mbuya, it was contended, could

have asked for an extension of time. Mr Marando pointed out that the written statement of defence was neither filed nor was extension of time applied for, instead Mr Mbuya prayed for an adjournment. For failing to do one of those two things, Mr Marando remarked, under O VIII R 14(1) of the CPC the Court was free to grant the counter-claim or I make any other order as it deemed fit. In this case,

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Mr Marando said, the court allowed the counter-claim and that was after he had prayed for that. A

Mr Marando also observed that Mr Mbuya was not in a position to prove the case for TEL because he had told the Court that he had four to five witnesses all of whom were in Ireland and specifically prayed for an adjournment so that the witnesses and the Managing Director could come at the same B time to save costs.

Mr Mbuya admitted that the learned judge was entitled to know the nature of the illness of the Managing Director and that the medical certificate was conspicuously silent on that. At the same C time we cannot fault the learned judge in comparing the signatures, albeit suo motu, of documents tendered in the same case. Again we cannot fault the learned judge for refusing the prayer to adjourn which was made on the date set for hearing, when the reason advanced was a failure to comply with the rules. These rules are for all litigants; residents and non-residents alike. We might have been D swayed otherwise if the refusal was to an application to extend time within which to file a written statement of defence to the counter-claim. It beats us why that was not done. Mr Mbuya would have been playing within the rules and not outside them as he sought to do. We then note that Mr Mbuya did not have a single witness to support the plaint. We also glean that he could not defend the E counter-claim. This is because Mr Mbuya did not even have enough instructions to prepare a draft written statement of defence. It is not surprising then that the specific prayers for the dismissal of the plaint and the grant of the counter-claim were not challenged. F

Now all of that has to be seen with the backdrop of the previous conduct of Mr Mbuya in this litigation. It is on that on 19 October 1990 Mr Mbuya was granted an adjournment he had prayed for to file an affidavit for Mr Mkatte, learned counsel, who had acted for TEL before him. Mr Mbuya has not G refuted Mr Maira's assertion that that affidavit has yet to be filed. Then two copies of notices of hearing were produced. One was for a hearing before the same Rubama J on 1 December 1990 and on that Mr Mbuya endorsed: `the date is inconvenient to us'. The other was for a hearing before the H same judge on 10 December 1990 which was again annotated `date unsuitable because of previous engagents sic)'. Obviously the word was intended to be `engagements'. Not even lame excuses were offered to explain the endorsement. Denials were out of question because of signatures and his Chamber's stamp. To crown it all, the discovery that Valambhia was not served with a copy of notice I of

1993 TLR p96

RAMADHANI JA

A appeal, as already seen, was made on 23 April 1991 yet it took six months, until 23 October 1991, to apply for the extension of time in which to serve them. The explanation given was that Mr Mbuya's secretary was hospitalised in various places outside Dar es Salaam including Nairobi and that she had to swear an affidavit in support of the application, and so the delay.

B We are far from being persuaded that there are any extraordinary circumstances meritting the attention of this Court except perhaps a display of the lack of coming to grips with the rules.

The second set of reasons on important points of law was largely marshalled by Dr Ford. He started C by pointing out that courts would normally extend time prescribed by their rules if a point of law is involved which would not be dealt with unless time is so enlarged. Then Dr Ford gave an inventory containing seven points of law. However, we are of the well settled opinion that only four of the seven D points merit discussion in this ruling.

The first point of law we address ourselves to is that the Stamp Duty Act, 1972 has been violated. Mr Mbuya at the end of the day acknowledged that the document of 10 June 1989 between Valambhia and the Ministry of Defence (MOD) is exempted from stamp duty. As to the unilateral surrender E agreement of 4 January 1989, Mr Mbuya, after some prevarication, stated that his instructions were that it was an agreement and so was covered by the Stamp Duty Act. This is the document titled `Irrecoverable Agreement' in which TEL `irrevocably, unconditionally, unilaterally' surrendered 45% of F the proceeds of the contract it had entered with MOD to Valambhia.

Mr Marando had two responses to that. First, he claimed that a unilateral surrender is not an agreement so is not covered by the Stamp Duty Act. In the alternative it was argued that the G omission to affix a duty stamp on the document can be cured by the court ordering that to be done. Mr Marando referred us to two unreported authorities of the High Court on this point: Abdulatiff v Saada Mohamed (1) and Kidaha Rashid v Nasser Mohammed Mbaraka (2).

H We have no difficulties in saying that the relevant document is an agreement and so covered by the Stamp Duty Act. Apart from the fact that the document itself is so entitled, that is `Irrevocable Agreement', it has been signed by R John Nolan, the Chairman and Managing Director of TEL, and by Valambhia himself. If it was truly a unilateral surrender document then there was no need for I Valambhia to sign when not a party to a unilateral declaration. Now, if it is an agreement then it is subject to stamp duty.

1993 TLR p97

RAMADHANI JA

Section 46(1) of the Stamp Duty provides: A

> No instrument chargeable with duty shall be admitted in evidence for any purpose by any person having by law or consent of parties authority to receive the evidence or shall be acted upon, registered or authenticated by any such person or by any public officer, unless such instrument is duly stamped.' (Emphasis added.) B

Two conditions prescribed in that subsection are relevant here. These are the admission of an unstamped document in evidence or acting upon such a document. Now, from the record it is patently clear that Rubama J never `admitted in evidence' the irrevocable agreement. However, a C copy of the agreement was annexed to the written statement of defence and the counter-

claim and Valambhia craved leave to refer to it as part of the written statement of defence. As such, though the learned Trial Judge did not mention the agreement in his ruling, the irrevocable agreement could be taken to have been `acted upon'. For the purposes of this reference let us assume that it was. This D offends the above quoted section.

Now, is that a vital point of law in issue to be sufficient cause for us to extend time?

Mr Marando referred us to Abdulatiff and Kidaha Rashid where it was held that an unstamped E document was admissible provided that an order was issued that it be stamped. In fact that is provided for by proviso (a) to s 46(1) of the Stamp Duty Act. Admittedly this, for whatever reason, was not ordered by the learned Trial Judge. Now, if we extend time, as it asked of us, and the appeal F comes up, what is it that we are going to do after the hearing? The answer is obvious. We are going to do what Rubama J ought to have done under the proviso referred to above. Now, is that a vital point of law for our consideration? We think not. When the outcome is that well charted out then it cannot be a vital point of law for the consideration of this Court. G

Of course we are aware that if our assumption that the irrevocable agreement has been `acted upon' is correct, then we have on record a document which offends s 46(1) of the Stamp Duty Act and it will continue to be so if we refuse to extend time so that we can rectify it on appeal. However s 4693) H of the same Act says:

(3) Failure by any public officer to examine and impound any instrument as required by this subsection (sic) shall, in no circumstances affect -

(a) any proceeding under this Act or any other written law. I

1993 TLR p98

RAMADHANI JA

A Without analysing ss (3), on the face of it, we have no doubt that it covers the present situation where the ruling by Rubama J was made `under . . . any other written law'. It would appear to us then that no offence is perpetuated.

B So this point of law is not such as would persuade us to extend time.

The second point of law raised was with respect to the proof of the quantum of damages. The damages awarded have been regarded as implausible. It was also argued that TEL was not given an opportunity to defend itself.

C On 12 February 1991 after the rejection of the application for an adjournment by TEL, the dismissal of the plaint and granting of the counter-claim, an order was given that the proof of the quantum was by an affidavit. It was to be filed by 5 March 1991 and mention was to be on 9 March D 1991. The orders were given in the presence of Mr Maira and Mr Mbuya.

Valambhia duly filed his affidavit and quantum. On the date appointed for mention Mr Mbuya was absent. So the Deputy Registrar who conducted the mention placed the matter before Rubama J on E 19 March 1991 for the assessment of damages. On that date, too, Mr Mbuya was absent and the ruling on damages was finally given on 22 March 1991. Again the record does show that Mr Mbuya was present.

Two things are conspicuous from the records. First, the copy of the affidavit by Valambhia is silent F and mum on whether a copy of that was served on TEL. So TEL was not aware of what

was claimed. Then, as already said, the records are loud and clear that Mr Mbuya was absent from the court on 9 March 1991 at the mention, on 19 March 1991 at the assessment of damages and on 22 March 1991 when the ruling on the assessment was delivered.

G We shall start with the second complaint that TEL was not represented in court for the assessment. As already pointed out Mr Mbuya was aware of the date for mention. He therefore did not need a notice of hearing from the registry. That he was absent, he has only himself to blame. Of course, in his absence the date for the assessment was fixed which sitting he again missed. Now, H was he to be notified of that date either by the registry or by Valambhia? We are very quick to say no.

An eminent Chief Justice of Zanzibar, Chief Justice Law, as far back as 1939, said in Abdulhusein Bodalbhoy v Marekwa (3):

I `In my opinion, apart from the official notice in `the Gazette' referred

to, it is the duty of parties to keep themselves informed as to when their cases will be tried.' (Emphasis added.) A

We concur with the learned Chief Justice only that instead of reference to the notice in `the Gazette' we shall refer to the date fixed for mention. B

Now, was Mr Mbuya prevented from challenging the affidavit because of non-service of a copy thereof? The immediate reaction is to say yes. But upon reflecting that was not so. First, had he attended the mention on 9 March 1991 he would have complained of the non-service. Definitely he would then have been served. But, secondly, and this may be more vital, Mr Marando cautioned that C Mr Mbuya did not have an automatic right of filing a counter-affidavit according to Bahati J in Air Caterers Ltd v Air Tanzania Corporation (4). Mr Marando claimed that Mr Mbuya had to make an application to do that. The submission was not controverted in reply. D

So we are satisfied that the failure to be heard on the assessment was self-imposed by Mr Mbuya and that that cannot be a point of law to enlarge time.

It was also submitted that the Tanzania Exchange Control Ordinance, Cap 294, particularly s 5(b) E thereof, had been violated. This was the third vital point of law involved, so it was claimed, in the intended appeal. The breach of that statutory law was coupled with the disregard of the case law that Tanzania Courts can only enter judgments in Tanzania Shillings and not in foreign currency as was F in this case. As for the second criticism we were referred to the case of Continental Agencies v A C Berrill & Co Ltd (5) in which the East African Court of Appeal upheld the then Chief Justice of Tanzania, Georges.

Mr Marando remarked that the decision in Continental Agencies was based on the English law as it G was then and according to the case of Manners v Pearson and Son (6) which was cited in Continental Agencies by Mustafa JA. However, he pointed out, the position in England has now changed as is witnessed by the Halsbury's Laws of England 4th ed at 341. The learned advocate H went further to say that there are certain decisions of the High Court of Tanzania which have

awarded damages in foreign currency. He cited Theodoras v Gordon (7). In that case, Mr Marando submitted, Chua J gave judgment in pounds sterling.

It is clear that Georges CJ based his decision on the English case. Dr Ford told us that because of the European Community the legal I

1993 TLR p100

RAMADHANI JA

A position in England has changed as borne out by Milliangos v George (8) where damages in tort, not contract, were awarded in foreign currency. However, Dr Ford could not contain his astonishment when the excerpt from the Halsbury's Laws of England was read out. That para 541 reads, in relevant places, as follows:

B `The Court has power to give judgment for a sum of money expressed in foreign currency in the case of obligations of a money character to pay foreign currency under a contract; the proper law of which was a foreign country or where it is the currency of the contract. . . . Where a plaintiff seeks to obtain a judgment in a foreign currency he should C expressly state in his writ of summons that he makes his claim for payment in a specified foreign currency and should plead the facts relied on to support such a claim.'

Two conditions prominently stand out in that proposition of law. First, the contrast forming the basis D of the claim must have been in foreign currency. Second, the plaintiff, or as in this case the defendant in the counter-claim, must have specifically prayed for relief in foreign currency while proving the basis of that prayer. We do not need to recapitulate that both of the requirements were met in this case.

E In our opinion if the basis of the case law of Tanzania has changed then there is absolutely no reason why the case law should not follow suit. That would have been different if there is a statute to the contrary. We may observe here that Cap 294 is no longer law in Tanzania. It was repealed by the F Foreign Exchange Act 1 of 1992 which came in force on 16 March 1992 per GN 37/92. The former s 5(b) which is said to have been violated, prohibited payments within Tanzania to or for the credit of a person resident outside Tanzania or on behalf of one resident outside Tanzania except with the G permission of the Treasury. However, the new s 5(b) says:

`any person whether resident or not resident in the United Republic may hold any amount of foreign currency and raw gold within the United Republic.'

H In fact Bureaux des Change have been established for transactions without formality and secrecy has been guaranteed except by due process of law.

We are of the well considered opinion that the point of foreign exchange violation has been overtaken by events and law. That point will only have academic interest while this is a court of justice and not I an academic institution.

1993 TLR p101

RAMADHANI JA

Admittedly because of the doctrine of stare decisis Rubama J, as well as the other learned judges, A were bound by the decision in Continental Agencies. But we cannot help asking ourselves whether we will strike the Continental Agencies in view of the present legal state, if the ruling

of Rubama J comes to us on appeal. It is a foregone conclusion that we will not. If so, then what is the vital point of law which we shall deal with if we extend time? B

The final point of law that was propounded was that the learned Trial Judge erred in law in ordering a third party, the Government through the Ministry of Defence, to effect payment while not being afforded an opportunity to put up a case. Here there are three matters. First, the moneys claimed do C not belong to the Government but were due to be paid to TEL. The fact that the Government owed TEL some money has been more than adequately testified to by TEL in their plaint in paras 3 to 6 and 10. The second point is that the Government itself acknowledges having some money for TEL. D Mr Mrema, Principle State Attorney and the Director of Civil and International Department in the Attorney-General's Chambers, had said in Court:

`We are aware Government owed TEL certain moneys for goods delivered, the Government has an obligation to pay E that debt.'

Lastly, the Government is aware of the dispute between TEL and Valambhia and has agreed to assist the latter to recover what is due to him. There is the agreement of 4 January 1989 between the F Government and Valambhia to that effect. TEL has acknowledged the existence of that agreement in para 10 of the plaint. As a matter of fact the Government was just waiting to know whom, as between the parties, should be paid and how much.

It is clear that the Government was not sued and did not require to defend itself and the requirement G to pay was not prejudicial to its interests.

As stated much earlier, Dr Ford gave us a list of authorities from outside this jurisdiction on the fact that this Court could enlarge time prescribed by our Rules if there is a point of law involved in the H appeal. We agree with that and we have in fact already done so a number of times. In Principal Secretary, Ministry of Defence v D P Valambhia (9) we said `In our view when the point at issue is one alleging illegality of the decision being challenged, the Court has a duty even if it means extending the time for the purposes to ascertain the point and, if the alleged illegality be established, to take I

A appropriate measures to put the matter and the record right.' In the case before us the points of law submitted do not, in our opinion, and as we have shown above, succeed to put in doubt the legality of the ruling by Rubama J. They are the sort of points of law fit to be considered in other B proceedings as was the view of the Court of Appeal for Eastern Africa in The Commissioner of Transport v The AG of Uganda and Another (10) which we cited in The Principal Secretary. What is glaring to the eye here is sheer negligence of the advocate, which has often times been held not to be sufficient reason to extend time.

C So we agree with Mfalila JA that no sufficient reason has been disclosed to extend time and that application is rejected.

D

Court High Court of Tanzania - Moshi
Judge Mroso J

E CRIMINAL APPEALS NO. 2 & 3 OF 1993
12 March, 1993
Flynote
F Criminal Practice and Procedure - Charges - Charge of breaking into a building with intent to commit an offence but facts show breaking into a dwelling house - Charge defective: ss 294(1) and 297 of the Penal Code.
G Criminal Practice and Procedure - Charges - Duplex charge - Offence of breaking into a building with intent to commit an offence therein and offence of theft charged in one count - Charge is bad for duplicity.
Criminal Law - Theft - Doctrine of Recent Possession.
-Headnote
H The Appellants were charged with and convicted of breaking into a building with intent to commit an offence therein, namely theft c/ss. 297 and 265 of the Penal Code. A girls' school dormitory was broken into one night and personal belongings of some school girls were stolen. After mounting a search some of the stolen items were picked from different places. A schoolgirl's skirt was found in I the Appellant's homestead. The
1993 TLR p103
Trial Court record showed that the offence of breaking into a building with intent to commit an offence A therein, and the offence of theft, were charged in one count.
Held: (i) When the building broken into with intent to commit an offence therein is a dwelling house, as in this case, the offence is housebreaking, and because it was committed at night, the charge should have been of burglary, not breaking into a building with intent to commit an B offence therein;
(ii) Breaking into a building with intent to commit an offence therein and theft are two separate offences which should be charged in two separate counts; by putting the two in a single C count the charge was bad for duplicity;
(iii) Suspicion, however strong, cannot form the basis for conviction of theft.
Case Information
Appeal allowed.
Case referred to: D
1. Bachuka Amerika and Others v. Republic [1979] L.R.T., n. 8.
Mlambo, for the Respondent.
[zJDz]Judgment
Mroso J: Appeals Nos 2 and 3 respectively of 1993 have been consolidated for hearing. The E appellant in Criminal Appeal No 2/93 is one Erasimu Daudi, henceforth in this judgment to be referred to as the first appellant while the appellant in Criminal Appeal No 3 of 1993 is one Erasto Daudi, henceforth to be referred to as the second appellant in this judgment. The two

appellants were prosecuted jointly in the District Court of Moshi, along with three others, on three counts of breaking F into a building with intent to commit an offence therein, namely theft, contrary to s 297 and 265 of the Penal Code. The appellants were convicted as charged and were both sentenced to five years imprisonment on each count, the sentences to run concurrently. The other three accused persons were acquitted. Aggrieved by the convictions and sentences, the appellants have lodged appeals to G this court.

When I heard the appeals on 5 March 1993 I immediately alleged them by quashing the convictions and setting aside the prison sentences. I ordered that they be set free from prison forthwith unless H they were held for some other lawful cause. I reserved written reasons which I now try to give herein.

The appellants were said to have broken into a dormitory in which students were sleeping during the night of 17 August 1992 at Kiboshe Girls Secondary School. They were found by the Trial Court to I have stolen an assortment of personal belongings of three

A girls at the school. The value of the stolen property was estimated to amount to a total of shillings 377,200/=, according to the charge sheet.

To start with, the charge sheet was defective. It is not clear if more than one building was broken B into. But assuming it was a single building (it does not matter if it was more than one building), it was a dormitory and hence falls under the definition of a dwelling house. Now, if a person breaks and enters a building used as a human dwelling with the intent to commit an offence therein, he commits C the offence of house breaking, contrary to s 294(1) of the Penal Code. Since the breaking was committed at night, the offence is more appropriately termed burglary. It was wrong, therefore, to charge the appellants with breaking into a building with intent to commit an offence under s 297 of the Penal Code as that section relates to buildings which are not used for human dwelling.

D Secondly, the charge, even as drafted, was duplex. It charges two offences in one count namely, breaking into a building with intent to commit an offence therein contrary to s 297 of the Penal Code and for committing the offence of theft, contrary to s 265 of the Penal Code. Those are two separate E offences which must be charged separately in different counts.

Similarly, if a person breaks into a dwelling house and commits the offence, say of theft, therein he commits two different offences one under s 294 and the other under s 265, both of the Penal Code. F The Trial Magistrate, therefore, erred in accepting the wrong charge which was also bad for duplicity, and in passing `omnibus' sentences. Before I discuss the merits of the appeal, let me give a brief resume of the evidence that was adduced before the Trial Court, as revealed in the lower court record.

G During the night of 17 August 1992 someone or some people, using a ladder broke into and entered the first floor of a school dormitory in which girls were sleeping. Two suitcases containing an assortment of personal belongings of two girls and a pair of canvas shoes belonging to another girl were stolen. The victim girls discovered the theft on the same night but after the thief or thieves had H already left. General alarm was raised and later a report was made to the

Police. Policemen who included PW4 - Detective Hussein and PW5 - Detective Msanya came to the scene with a police dog. A search was mounted and in the course of it a suitcase with some personal belongings of the student Leonara Mkanzabi (PW1) and some personal belongings (not the suitcase) of Joan Munisi I (PW2) as well as canvas shoes belonging to student Pamela
1993 TLR p105
MROSO J
Shao (PW3), were found and picked from different places. The appellants were found together and A taken to their home (apparently they lived in the same homestead and are half-brothers). When the houses at the homestead were searched a school girl's skirt was found. It is not clear from the evidence if any of the three students who testified at the trial identified the skirt as belonging to either B of them. The skirt was seized and the appellants said that their sister might be able to give an explanation about the skirt. Otherwise they denied they had anything to do with it.
During the trial a sister of the appellants, one Raphaela Daudi a 12-year-old girl who was in standard V, gave evidence as DW6. She explained that early on the morning of the day a search was done in C her room she had picked the skirt on her way to school. On reaching school she was sent back home to get school fees. She took the skirt home and left it in her room until it was traced by the police search party. The appellants were convicted on the basis of the skirt which was found at their D home, because as stolen property, it was found presumably in their possession only hours after the theft. The Trial Magistrate had invoked the doctrine of recent possession.
I was unable to find proof from the recorded evidence that the skirt was one of the things which had E been stolen from the school dormitory. The Trial Magistrate claimed in her judgment that PW2 Joan Munisi identified it as part of her property. But the claim is not borne out by the record. Joan indeed identified four skirts in court among other things as belonging to her but it is by no means clear if the particular skirt which was found at the home of the appellants was identified by Joan to be hers. But assuming for the sake of argument that it was, was it found in the possession of the appellants? F There was conflicting evidence regarding in whose room the skirts were found. The appellants said the skirts were found in their sister's room. They were tacitly supported by a prosecution witness PW8 - Lulea Dukaria, a ten cell leader who was present during the search. On the other hand, G PW7 Leoni Martin who was the appellants' ten cell leader had merely heard from PW2 that a skirt had been found `there', presumably meaning at the homestead of the appellants. He was not present at the time of the search. Furthermore, DW6 - Raphaela explained how she got the skirt. That story was not at all that unlikely considering that from the evidence of the police officers - PW4 and PW5 H some of the stolen items were found dropped at different places along the route used by the thief or thieves. Was it impossible that the skirt in question was one of the things which had also been dropped by the fleeing thief/thieves? I
1993 TLR p106
MROSO J

A The two policemen - PW4 and PW5 said in their evidence that as they traced the path which the thief or thieves had taken they heard noises of people fleeing and then saw the things which had been dropped along the route. Assuming that some of those fleeing thieves were these appellants in B court, would they have been so naïve as to take the single skirt to their home and hide it in one of the rooms even though there was a likelihood the pursuing police might search the houses along the route?

The Trial Magistrate appeared to have made substantial reliance on evidence that it was the police C dog which led the search party to the home of the appellants. She said -

`. . . I am driven by circumstantial evidence on how the dog led the policemen to the house of the first and second D accused without going to another house and on the way some properties were found dropped'.

With respect, our law of evidence has no provision on what a police dog can or cannot prove in a criminal trial in a law court. It was not advisable or proper therefore for the Trial Magistrate to place E any reliance on what the police dog may have done as part of the proof that the appellants were guilty of the offence which had been charged against them.

The Trial Magistrate also appeared to have convicted the appellants on more suspicion as she F demonstrated in her statement in the judgment -

`I find the facts of this case on the suspicion of first and second accused to be the same as the facts in the case of Bachiuba Amerika and Others v Republic (1).'

G But the case cited is no authority that suspicion can be a basis for convicting a person accused of committing a crime. The law is that no amount of suspicion, however strong, can found a conviction.

All in all, the evidence which was adduced by the prosecution was inadequate to prove the guilt of the H appellants. The appellants ought to have been acquitted. It is noteworthy that even in the course of hearing this appeal the Republic did not seek to support the conviction. It was for the above reasons that I allowed the appeal and the orders that I did.

1993 TLR p107

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[zRPz]KENETH MANDA v REPUBLIC 1993 TLR 107 (HC)

Court High Court of Tanzania - Arusha

Judge Mroso J

CRIMINAL APPEAL NO. 7 OF 1993 B

12 March, 1993

Flynote

Criminal Practice and Procedure - Plea of Guilty - Appellant pleaded guilty and admitted facts not constituting the offence charged - Whether plea of guilty unequivocal. C

Road Traffic - Causing bodily injury through reckless driving - Ingredients of reckless driving - Road Traffic Act 1973.

-Headnote

The Appellant was charged with causing bodily injury through reckless driving. He was convicted on D his own plea of guilty. But the particulars of the offence in the charge sheet, and the facts stated in court by the prosecution, did not suggest any reckless driving by the Appellant.

Held: (i) An accused person can only be convicted on his own plea of guilty if it is ascertained that he has accepted as correct facts which constitute the ingredients of the offence charged; E

(ii) As no particulars or facts constituting reckless driving were put to the appellant, his plea of guilty was equivocal and should have been entered as a plea of `not guilty'.

Case Information

Appeal allowed. Case remitted to the lower court to enter a plea of `not guilty' and the case to F proceed to hearing.

No cases referred to.

[zJDz]Judgment

Mroso J: This is an appeal against a conviction and sentence by the District Court of Moshi in Traffic Criminal case No 288/92. The appellant is shown to have pleaded guilty to a charge of causing bodily G injury through reckless driving, contrary to ss 42(1)(a), 63(2)(b) and 27(1)(a) of the Road Traffic Act, No 30 of 1973. He was convicted on the plea of guilty and sentenced to a fine of shillings 10,000/= or 12 months' imprisonment in default. He was also disqualified from holding or obtaining a H driving license for a period of three years. His appeal is based mainly on the complaint that the plea of guilty was equivocal.

At the hearing of this appeal the learned State Attorney for the respondent Republic did not seek to support the conviction. He conceded that the plea of guilty was equivocal, I proceeded to I

1993 TLR p108

MROSO J

A allow the appeal by quashing the conviction and setting aside both the sentence and the disqualification order. I ordered that the fine if already paid be refunded to him. The case was remitted to the lower court with a direction that a plea of not guilty be entered against the appellant and the case to proceed to hearing.

B There is no doubt that the plea of guilty by the appellant was equivocal. The particulars in the charge sheet read:

`That Keneth s/o Manda charged on the 15th day of October 1992 at about 15:35 hrs along Himo Road within the C Municipality of Moshi Kilimanjaro Region being the driver of motor vehicle Reg No 95843 make Toyota Coaster PSV did drive the said motor vehicle on the said road recklessly. To wit he failed to control well the said motor vehicle as the result went off the road and overturned thereby caused bodily injuries to Aisia d/o Nichola and Regina d/o Phillipo who were passengers in the said motor vehicle.'

D The appellant accepted these particulars as true. The Court entered a plea of guilty following that plea. When the prosecution was called upon to give the facts of the case he said:

E `On 15/10/92 at about 3:35 along Himo Road In Moshi Town, accused was driving a motor vehicle registration number TZ 95843, a mini bus for carrying passengers. He was driving from Himo towards Moshi Municipality. Accused failed to control the motor vehicle as such it overturned and injured two passengers namely Asia Nichola F and Regina Phillipo. I produce PF3 in respect of the injured people as exhibits.'

After the exhibits were tendered the appellant said the facts were correct. The court then proceeded G to convict him on his own plea of guilty.

As is obvious, there was nothing said either in the particulars of the offence or in the facts as given by the public prosecutor which suggested reckless driving apart from the bare assertion that the appellant failed to control well (sic) the motor vehicle he was driving and that consequently it H overturned. Now, to fail to control a motor vehicle one is driving can be as a result of either careless or reckless driving or because of a factor for which the driver is not personally responsible. The appellant, belatedly perhaps, explained that his failure to control the motor vehicle was because a main leaf has broken. That might have been true. Incidentally, it is curious the prosecutor did not I tender to court a vehicle inspection report, if it

existed, to show the condition of the motor vehicle before and after the accident. A

If, as claimed by the appellant, the failure to control the motor vehicle resulted from the broken main leaf, he would not be blamed for the overturning of the motor vehicle and the resultant injuries to B passengers. Furthermore, admission by the appellant of the particulars of the offence and the facts narrated by the prosecutor as correct was non-committal and innocuous. It by no means suggested he was pleading guilty to the offence charged, unless the doctrine of res ipsa loquiter was being invoked. That is to say, that the mere fact that the motor vehicle overturned and passengers were C injured that meant the appellant had been reckless. But, as has often been stated by this court, the doctrine of res ipsa loquiter has no application in criminal law.

An accused person can only be convicted on his own plea of guilty if his plea is unequivocal. That is, where it is ascertained that he has accepted as correct facts which constitute all the ingredients of D the offence. That was not the case here. As already said, no particulars or facts constituting the offence of reckless driving were put to the appellant. So, the plea by the appellant was equivocal and the court ought to have entered a plea of not guilty and required the prosecution to adduce evidence E in proof of the offence charged.

The lower court should comply with the directions of this court as already given in this judgment.

[zRPz]HAMISI ATHUMANI AND TWO OTHERS v REPUBLIC 1993 TLR 110 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Nyalali CJ, Kisanga JJA and Ramadhani JJA

B CRIMINAL APPEAL NO. 14 OF 1993

30 April, 1993

C (From the decision of the High Court of Tanzania at Tanga, Mrema, PRM, Ext. Jur.)

Flynote

Evidence - Confession - Repudiated or retracted confession - Confessions found to be true - Conviction may be based on them.

-Headnote

D The three appellants were jointly charged with and convicted of murder and were each sentenced to death. They appealed against both conviction and sentence complaining, inter alia, that the Trial Court admitted in evidence and convicted the appellants on the basis of the alleged confessions of E the appellants which confessions had been repudiated or retracted.

Held: (i) Although the appellants in their defences at the trial repudiated or retracted their confessions once the Trial Court found those confessions to be true it was entitled to base conviction on them;

(ii) Conviction of the appellants was right as it was based on the repudiated or retracted F confessions of the appellants which the Trial Court found to be true.

Case Information

Appeal dismissed.

Case referred to:

1. Tuwamoi v. Uganda [1967] EA 84

G Mramba, for the appellants.

Miss A. Chinguwile, for the respondent.

[zJDz]Judgment

H Kisanga, J.A., delivered the following considered judgment of the court:

The three appellants were jointly charged with and convicted of murder contrary to s 196 of the Penal Code, and were each sentenced to death by Mr Mrema PRM (Exercising Extended Jurisdiction) sitting at Tanga. They have now appealed against both conviction and sentence. In this Court they I were represented by

1993 TLR p111

KISANGA JA

Mr Mramba, learned advocate, while the respondent Republic was represented by Miss Chinguwile, A learned State Attorney.

Essentially the case for the prosecution was that the three appellants jointly planned and killed the deceased. The third appellant Noti Mtachi, is the wife of the deceased; the first appellant Hamisi Athumani is her lover and the second appellant Wambua Mdhami is her cousin. It was alleged that B the motive for the killing was to save the appellant Noti from matrimonial harassment by the deceased who had constantly complained of her adulterous association with the appellant Hamisi. Thus in execution of their joint criminal venture, while the deceased was sleeping in his hut on the C material night, the third appellant who shared the hut with him

opened the door for the first and second appellants, and the three of them jointly killed the deceased apparently by strangling him. The third appellant then supplied a gunny bag in which the dead body was put after which the first and D second appellants took it away and buried it in the bush.

During investigation of the case the third appellant made a disclosure of the incident which led to the arrest of the first and second appellants who in turn showed the place where they buried the deceased. E

The appellants in their defences at the trial vehemently denied the charge. The third appellant claimed that on the day of the alleged killing her husband took leave of her in the morning saying that he was going to Kenya to sell some precious stones. He stated to her that he would return after some time but he did not, and she did not know what happened to him. The first and second F appellants equally denied the charge adding that on the material day they were each in different places away from the village of the deceased.

In convicting the appellants, the learned Principal Resident Magistrate relied on the evidence of G Monica (PW3), the third appellant's daughter, who testified to having seen the three appellants in the hut of the deceased on the material night only shortly after the deceased had called out saying that he was being killed. The learned Principal Resident Magistrate also relied on the retracted or repudiated confessions of the three appellants, and also on a finding of motive behind the killing, H namely, the elimination of the deceased who had resisted the adulterous association between the first and third appellants. He rejected the third appellant's assertion that the confession attributed to her was concocted by the prosecution. He equally rejected the first and second appellants' defences of alibi and their claim that the confessions attributed to them were not voluntary. I

1993 TLR p112

KISANGA JA

A In this appeal Mr Mramba filed a total of seven grounds of complaint mainly criticising the Principal Resident Magistrate for admitting in evidence the alleged confessions of the appellants, and for accepting and acting on the evidence of PW3 to convict the appellants. We propose to deal with the confessions first starting with those of the first and second appellants.

B These two appellants had claimed that the police tortured them by beating and starving them, and threatened to continue to torture, and even to injure them, if they did not admit killing the deceased. Under those circumstances, therefore, they made statements to the police, falsely admitting the killing, along the lines the police had wanted. They repeated the same stories in their respective C extra-judicial statements to the justice of the peace (PW2) for fear of more torture upon their return to the police. They denied having led the police to the place in the bush where the deceased had been buried and alleged that it was the police who were directing them, as they marched along through the D bush, until they came to the place of burial.

The learned Principal Resident Magistrate having held a trial within a trial and, upon believing the E evidence of the police officer (PW6) and that of the justice of the peace (PW2) who testified that the appellants made their statements voluntarily, accordingly admitted the

confessions in evidence. We are unable to say that he erred either on the procedure he followed or in arriving at his decision to admit the confessions in evidence.

F Mr Mramba contended that the justice of the peace in recording the extra-judicial statements of the appellant failed to comply with some important requirement or requirements as set out in the `Guide for Justices of the Peace' when recording the statement of an accused person. It is pertinent to point G out that at the time Mr Mramba was making this submission he did not have a copy of the said `Guide for Justices of the Peace' and none was available for our reference at the Tanga Registry. However, upon our return to Dar es Salaam we have since secured one, and on perusing it we are satisfied that there was substantial compliance with the requirements thereof by the justice of the H peace when recording the extra-judicial statements of the first and second appellants. Again in view of the evidence of PW1, PW3 and PW6 the Principal Resident Magistrate was quite entitled to reject the appellants' claim that it is the police who were directing them as they walked through the bush to the place where the deceased was buried.

I Turning for the moment to the third appellant, she completely

denied to have made any statement to the police or to the Justice of the Peace (PW2). According to A her, after the deceased had gone missing from their home the villagers mounted a search for him. In the course of doing so they consulted a local witchdoctor who announced at a meeting of the villagers that the deceased had been killed by the three appellants following which she (third B appellant) was arrested and taken to the police. She added that the person who handed her over to the police repeated to the police what the witchdoctor had told the villagers. She claimed that the confession attributed to her must have been a fabrication originating from the witchdoctor's allegations as announced at the meeting of the villagers. That is to say, following such C announcement the villager who took her to the police told the police that she and her co-appellants were responsible and the police in turn, based on this information to the Justice of the Peace who accordingly took it down and attributed it to her. D

Following a trial within a trial on the issue, the Principal Resident Magistrate rejected the appellant's story. He found that it is the third appellant herself, not the alleged witchdoctor who made a disclosure of her involvement, and indeed that of her co-appellants, in the killing of the deceased. He E accepted the evidence of the Justice of the Peace who testified that the third appellant made a confessional statement before him and that she did so voluntarily. The Principal Resident Magistrate ruled that the extra-judicial statement of this appellant was admissible in evidence and we can see no ground for faulting him. For, to say the least, we could find no conceivable reason why the Justice F of the Peace would go all the way to fabricate a confession implicating this woman.

Upon his evaluation of the evidence before him the Principal Resident Magistrate held that the appellants' confessions were true, and we think that he was amply justified to so hold. For one thing G the appellants' confessions were confirmed in some material particular by subsequent events. Thus the confession of the third appellant implicating herself as well as the first and

second appellants, and leading to the arrest of the latter, was confirmed by the confessions of the first and H second appellants who not only implicated themselves and the third appellant but also led the police to the place where they had buried the dead body of the deceased. Furthermore, the first and second appellants in their confessions stated that after the deceased was jointly killed by the three of them, his dead body was put in a gunny bag which they tied with a rubber band and then took it away for I burial. Indeed this was

1993 TLR p114

KISANGA JA

A confirmed when upon exhuming the dead body of the deceased, it was found to be placed in a gunny bag which was tied with a rubber band. In the gunny bag also was found the trousers of the deceased which confirms the confession of the second appellant that they also put the clothes of the deceased in the gunny bag before taking it away for burial.

B Thus the Principal Resident Magistrate took the view that although the appellants in their defences at the trial repudiated or retracted their confessions. Once he had found those confessions to be true he was entitled to base conviction on them, citing as his authority the case of Tuwamoi v Uganda (1). C There can be no doubt that he properly directed himself in the matter.

The other piece of evidence relied upon to convict the appellants was the evidence of PW3, and as intimated before, Mr Mramba criticised the Principal Resident Magistrate for accepting an acting on D it; the thrust of his submission being that PW3 was an unreliable witness. The Principal Resident Magistrate reviewed the evidence of PW3 at great length, and duly considered the various criticisms levelled by Mr Mramba both at the trial and before in respect of that evidence. At the end of the day he came to the conclusion that PW3 was a credible witness. He went further and said that although E the defence doubted the credibility of PW3, her evidence was sufficiently corroborated by the repudiated or retracted confessions of the appellants which he found to be true. We can find no fault in all this. Indeed on the issue of corroboration we might go further and say that even if the evidence F of PW3 were to be disregarded, which of course it should not, conviction could still be safely based on the repudiated or retracted confessions of the appellants which were found to be true.

The learned Principal Resident Magistrate also found the existence of motive behind the killing and G there was abundant evidence to support such finding. The first and third appellants were lovers, and the deceased had all along resisted and complained about it. Indeed following one such complaint the first appellant was adjudged by village elders to pay the deceased Shs 2,000/= compensation in H respect of the adultery. In our view that provided the basis for a grudge against the deceased by the first appellant, and ample motive for the first and third appellants to eliminate the deceased for being an obstruction or obstacle in their love affairs. The second appellant, as stated in his own extra-judicial statement, participated in the criminal venture out of sympathy for the third appellant, I his cousin, who had appealed to him for help to kill the deceased who was torturing her.

1993 TLR p115

In the light of all this incriminating evidence the learned Principal Resident Magistrate, rightly in our A view, rejected the defence of each appellant consisting of a denial of the charge. He further rejected the defences of alibi put forward by the first and second appellants in the light of their own confessions and that of the third appellant, and also on the strength of the evidence of PW3 who B testified to seeing the appellants at the home of the deceased on the material night. It is noted that the appellants did not give any notice or particulars of their alibis at the trial in terms of s 194(4) and (5) of the Criminal Procedure Act; that would provide an additional ground for the decision to attach C no weight on the said alibis.

After a careful study of the record we are of the view that the appellants' convictions were well founded and we could find no reason to interfere. In the result the appeals of all the appellants fail and are accordingly dismissed in their entirety. D

1993 TLR p115

E

[zRPz]MOSES MAYUNGA v REPUBLIC 1993 TLR 115 (HC)

Court High Court of Tanzania - Moshi

Judge Munuo J

CRIMINAL APPEAL NO. 5 OF 1993 F

7 May, 1993 - MOSHI

Flynote

Criminal Practice and Procedure - Right of accused to defend himself - Accused jumps bail and absconds after G close of prosecution case - Whether conviction and sentence passed in his absence was proper - Sections 226(1) and (2) and 227(1) of the Criminal Procedure Act 1985.

-Headnote

The appellant was charged with breaking into a building and stealing therefrom. After the prosecution H closed its case, he jumped bail and absconded. The Trial Court convicted and sentenced him in absentia. On appeal he complained of being denied the right to defend himself and to call witnesses.

Held: Having jumped bail and absconded, the appellant is estopped from complaining that conviction I and sentence were passed in his absence.

1993 TLR p116

Case Information

A Appeal dismissed.

No cases referred to.

[zJDz]Judgment

Munuo J: This is an appeal against the decision in Moshi District Court Criminal Case No 595 of B 1989 wherein the accused Moses Mayunga was charged with breaking into a building and stealing contrary to ss 296(1) and 265 of the Penal Code in that he burgled the grinding machine

house of the KCMC hospital therein stealing a mortar valued at Shs 7,000/= the property of the said hospital.

C The complainant, PW2 Peter Paul stated that being the watchman on guard duty with his co-watchman, PW4 Josephat Mkumbo, they routinely combed the KCMC hospital premises only to find the padlock on the door of the grinding machine missing. Upon PW2 opening the unpadlocked door to find out what was happening therein, he encountered the accused Moses Mayunga hurrying D out carrying a mortar he had stolen therein. The watchman then confronted and apprehended the accused red-handed with the stolen mortar. A police officer PW1 Inspector Adam Ndesamburo visited the scene of the crime and formally arrested the accused and the recovered exhibit. The E accused was then charged with the present offence.

The accused jumped bail after the closure of the prosecution case so he remained at large until judgment was pronounced in his absence. He was later traced, rearrested and committed to prison to serve his sentence. Hence the present appeal.

F In his memorandum of appeal the appellant complained that he was unlawfully convicted in absentia and denied his rights of defence and of calling defence witnesses. The proceedings of the Trial Court speak for themselves. The prosecution closed their case on 17 April 1990. The accused then opted to give a sworn defence and to call one witness which he never did because he jumped G bail. He is therefore estopped from complaining against the conviction and sentence passed in his absence upon his own deliberate default to appear for his defence.

The Trial Court had powers to proceed under s 226(1) and (2) and, or, s 227(1) of the Criminal H Procedure Act 9 of 1985. In that regard the trial cannot be faulted.

In view of the above, the appeal is devoid of merit. The sentence imposed on the accused is the mandatory minimum provided under the Minimum Sentences Act 1972. The appeal is devoid of I merit. Accordingly the appeal is dismissed.

1993 TLR p117

A

[zRPz]AUGUST MAHIYO v REPUBLIC 1993 TLR 117 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

CRIMINAL APPEAL NO. 28 OF 1993 B

21 May, 1993

(From the conviction and sentence of the High Court of Tanzania at Arusha, Munuo, J.) C

Flynote

Evidence - Circumstantial evidence - False, incredible or contradictory statements given by way of explanation by the accused - Effect in reaching verdict.

-Headnote

The appellant was convicted of the murder of his wife and was condemned to death. He appealed D against both conviction and sentence. His story on the cause of the death of the

deceased had inconsistencies. On appeal counsel for the appellant argued that the alleged inconsistencies in the appellant's story regarding the cause of death of the deceased did not necessarily point to the guilt of the appellant. E

Held: (i) The force of suspicious circumstances is augmented whenever the person accused attempts no explanation of facts which he may reasonably be expected to be able or interested to explain; false; incredible or contradictory statements given by way of explanation if disapproved, become of substantive inculpatory effect; F

(ii) Looking at the totality of the evidence the circumstantial evidence pointed irresistibly to the guilt of the appellant;

(iii) On the evidence the learned Trial Judge had no alternative but to find that the prosecution had proved the charge against the appellant beyond reasonable doubt.

Case Information

Appeal dismissed. G

Case referred to:

1. Rafael Munya v R [1953] 20 EACA 226.

Makange, for the appellant. H

Mrs. Lyimo, for the respondent.

[zJDz]Judgment

Mnzavas, J.A., delivered the following considered judgment of the court:

The appellant, Augusti Mahiyo, was charged with and convicted of I

1993 TLR p118

MNZAVAS JA

A murder and condemned to death by the High Court, (Munuo J) sitting at Moshi on 9 August 1991.

Dissatisfied with the decision of the Trial Court he has appealed to this Court. It was the prosecution case that the appellant on or about the 6th day of June, 1988 at Keni Mengeni, Rombo district, B Kilimanjaro region, with malice aforethought killed one, Gudila w/o August, his wife.

In support of the prosecution case a relative of the appellant, Justice Ndemasa, PW2, testified in the Lower Court that on the fateful evening one, Jamila August, PW1, daughter of the appellant, met him C as he was returning home from a cooperative society (KNCU) and told him that her mother had sent her to call him because her parents were quarreling. He proceeded to the deceased's house but found the kitchen padlocked with a `viro' lock. The door to the main house was also locked. As no D one responded to his call of `hodi' he returned home. At about 9 pm on the same evening one, Focas, came to his house and told him that the deceased had fallen down and collapsed. The witness hurriedly proceeded to deceased's house where he met her husband, the appellant. On asking the appellant what had happened the appellant is said to have told him that his wife who was E expectant had suddenly collapsed and that he has massaged her in an attempt to revive her to no avail and that the deceased died.

In the morning relatives and neighbours of the appellant gathered to the bereaved house and F suggested that the deceased should not be buried before a post mortem examination was

performed to find out the cause of death. The witness told the Trial Court that at that juncture the appellant changed his story and told the gathering that the deceased had hanged herself in the kitchen; and showed to them a sweater which the deceased allegedly used in hanging herself.

G The deceased's death was reported to the police and after investigations the appellant was charged with murder; and, after hearing evidence in support of the charge and appellant's defence that the deceased had hanged herself, the learned Trial Judge was satisfied that the charge of murder had been proved beyond reasonable doubt and proceeded to convict the appellant of the H offence as charged.

Before us the appellant was represented by Mr Makange, learned counsel, while Mrs Lyimo, learned Senior State Attorney appeared for the Republic.

I Mr Makange, submitted that the learned Judge did not consider appellant's defence that he was not at home at the time the deceased

met her death and that he should have believed appellant's defence that it was when he returned A home when he discovered that his wife had hanged herself. The learned Defence Counsel finally argued that the alleged inconsistencies in the appellant's story regarding the cause of deceased's death did not necessarily point to the guilt of the appellant. B

In rebuttal Mrs Lyimo supported the conviction on the ground that the circumstantial evidence against the appellant irresistibly pointed to the guilt of the appellant. In support of her submission regarding the appellant's inconsistent stories the Court was referred to the evidence of PW2, PW3, PW4 and PW5. C

We have considered the matter carefully; and, in our own view of the evidence and the submissions by learned counsel, we are satisfied that the learned Trial Judge's finding that the appellant murdered his wife was amply warranted by the evidence.

When asked by his relative and neighbour, (PW2), as to what had caused the deceased's death he D initially said that the deceased suddenly fell down and died. On suggestions by neighbours and relatives who had assembled to the bereaved homestead that the deceased should not be buried till a post mortem examination was performed to established the deceased's cause of death the E appellant prevaricated; changed his story and said that the deceased had hanged herself. That he prevaricated a good deal is evident from the testimony of not lesser a person than his close relative PW2. Not to mention the evidence of PW3, PW4 and PW5, the police constable. F

The appellant's defence that the deceased had committed suicide by hanging was proved to be bogus by the neighbours who saw the place the appellant alleged that the deceased had hanged herself. In respect of this defence PW6 Dt/Corp Jacob, told the Court in his evidence inter alia: G

> `. . . The accused told me his wife had stomach pains so she committed suicide. The accused showed me a small kitchen where she allegedly hanged herself. I surveyed the place and

the height was just 5 ft while the body appeared taller. . . . I measured the height of the deceased; it measured 5 ft 6.' H

On being cross-examined by Mr Lyasenga, learned Counsel who represented the appellant in the High Court; the witness said inter alia:

`The body was 5' 6' while the height at the hanging place was 5 ft.' I

1993 TLR p120

A Medical report - exhibit P1 - was to the effect that the deceased had injuries on her neck and that the cause of death was `severe assault'.

Dealing with the question of circumstantial evidence the East African Court of Appeal had this to say in Rafael Munya v R (1):

B `The force of suspicious circumstances is augmented whenever the person accused attempts no explanation of facts which he may reasonably be expected to be able and interested to explain; false, incredible or contradictory statements given by way of explanation if disapproved, become of substantive inculpatory effect.'

C Looking at the totality of the evidence we are satisfied in our own minds that the circumstantial evidence pointed irresistibly to the guilt of the appellant. On the evidence the learned Trial Judge had no alternative but to find that the prosecution had proved the charge against the appellant beyond D reasonable doubt. The appeal is devoid of merit and we accordingly dismiss it.

1993 TLR p120

E

[zRPz]DAWIDO QUMUNGA v REPUBLIC 1993 TLR 120 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

F CRIMINAL APPEAL NO. 30 OF 1993

21 May, 1993

G (From the conviction of the High Court of Tanzania at Arusha, Munuo, J.)

Flynote

Legal Assistance - Accused charged with murder - Court allows trial to proceed without the accused having the H assistance of counsel - Whether trial fair and just.

Criminal Practice and Procedure - Calling of doctor who performed postmortem examination on the body of the deceased - Right of accused to be informed and to decide whether or not he wants the doctor to be called - I Section 291 of the Criminal Procedure Act 1985.

1993 TLR p121

-Headnote

The appellant was charged and convicted of murder by the High Court sitting at Arusha. He was A sentenced to death. He appealed against both conviction and sentence arguing, inter alia, that he had to prosecute his defence without legal assistance. In addition counsel for the appellant

challenged the High Court decision on the ground that the doctor who performed postmortem on the body of the deceased was not called to testify and therefore there was non-compliance with the provisions of B section 291 of the Criminal Procedure Act, 1985. In addition it was pointed out that during the trial the accused was not informed by the Court of his right to have the doctor called to testify. The Court of Appeal considered all the points raised.

Held: (i) The provisions of section 291 Criminal Procedure Code are mandatory and require that an C accused must be informed about his right to have the doctor who performed the postmortem called to testify in order to enable him decide whether or not he wants the doctor to be called;

(ii) The absence of counsel in a trial involving a charge carrying the death penalty deprived the Trial Court of assistance so vital that it cannot be said that the appellant had a fair and just trial. D

Case Information

Conviction quashed, sentence set aside, retrial before another judge ordered.

Case referred to:

1. Kinyori s/o Karuditu v. Reginam [1956] 23 EACA 480.

Merinyo, for the appellant. E

Mrs. Sumari, for the respondent.

[zJDz]Judgment

Mfalali, J.A., delivered the following considered judgment of the Court: F

The appellant Dawido Qumunga was charged and convicted of murder by the High Court sitting at Arusha (Justice Mrs Munuo). Upon this conviction he was by operation of law sentenced to death. He lodged his appeal against both conviction and sentence.

In this appeal, Mr Merinyo, Counsel for the appellant argued two grounds of appeal. Firstly, that the G learned Judge erred in law in not summoning to testify during the trial the doctor who performed the postmortem examination on the body of the deceased, and secondly that the honourable Judge erred in her assessment of the evidence relating to the causation of death otherwise she would have held H that the cause of death had not been established.

Considering the view we have taken of the entire proceedings in the High Court, we do not intend to go into the details of the merits of the case but we wish to state that the complaints embodied in the two grounds of appeal are part of a larger error committed by the learned Trial Judge. This error I consisted in allowing the trial to

A proceed without the appellant having the assistance of counsel. When the trial of the appellant opened on 28 September 1992, the following exchange took place between the Court and the accused:

Court to Accused:

B Mr Merinyo, learned advocate who was assigned the defence brief under legal aid is reported ill, so he cannot appear. The case will therefore have to be adjourned to another session.

Accused:

I have been in custody for a long time. Let the case proceed without defence counsel.

C Order:

Trial to proceed.

There was not the slightest attempt by the Court to dissuade the appellant from this prayer and warn D him of the dangers inherent in going it alone in such a serious charge. The Court did not warn the appellant of the pitfalls that awaited him in what to him was surely an unsurveyed terrain. The Court let him walk the unsurveyed terrain, the consequences as expected in such a serious charge were disastrous. In the course of the trial, he was faced with three legal issues which without legal E assistance proved too much not only for him but for the Court which also had to proceed without the benefit of legal assistance from the defence side.

The first problem was that raised in the first ground of appeal namely the non-calling of the doctor F who performed the post mortem examination on the body of the deceased. This involved non-compliance with s 291 of the Criminal Procedure Act 1985, which provides as follows:

`Section 291 -

G (1) In any trial before the High Court, any document purporting to be a report signed by a medical witness upon a purely medical or surgical matter shall be receivable in evidence save that this subsection shall not apply unless reasonable notice of the intention to produce the document at the trial, together with a copy of the H document has been given to the accused or his advocate.

. . .

(3) Where any such evidence is received in evidence the Court may, if it thinks fit, and shall, if so requested by the accused or his advocate, summon and examine or make available for cross-examination, the person I who made the report, and the Court shall inform the accused of his right to require the

person who made the report to be summoned in accordance with the provision of this subsection.' A

This is a mandatory legal provision requiring that an accused must be informed of these provisions to enable him decide whether or not he wants the doctor to be called. We think that the right created B by this section is so vital that at every trial where the accused is unrepresented the Court must make it known to the accused. This is because the presence of the doctor in the witness box can make a difference between a conviction for murder, manslaughter or even an acquittal depending on his elucidation of the cause of death recorded in the post mortem report. This brings us to the C second problem faced by the appellant at the trial, namely the deceased's cause of death. There is so much that was left unsaid in the post mortem report exh P1 that only the physical presence of the doctor in the witness box could have cleared or filled the empty gaps. But as we have pointed out, all D this was unsurveyed terrain for the appellant. How was he expected to know of his legal rights under s 291? We are satisfied that

had legal assistance been available to the appellant at the trial as it was at the taking of the plea on 27 August 1991, the question of compliance with s 291 would have E been raised as it was on 27 August 1991 when Counsel gave notice that at the trial the defence would require the physical attendance of the doctor who performed the post mortem examination. When therefore the trial opened on 28 September 1992 without Defence Counsel, both the Court and the Defence side were affected. There was no one to remind the Court of the mandatory provisions F of s 291.

The third problem was the conduct of the trial within a trial which arose in the course of the hearing. The conduct and procedure of a trial within a trial along the lines laid down by the Court of Appeal for G Eastern Africa in the case of Kinyori s/o Karuditu v Reginam (1) is difficult enough even with the assistance of Counsel, how much more difficult it must have been for an unassisted villager! We therefore ask ourselves: would the presence of a doctor have made any difference? Would the H presence of Counsel made any difference in the conduct of the appellant's defence as a whole? If the answer to both these question is in the affirmative, then we cannot say that the appellant had a fair and just trial. We are not saying that the absence of defence Counsel rendered the trial null and void, we are saying that the absence of Counsel in a trial involving a charge carrying the death I penalty, deprived the Trial

A Court of assistance so vital that we are unable to say that the appellant had a fair and just trial. We realise that the Trial Court acted on the wishes of the accused, who, tired of being in remand for a long time, wanted as it were to get on with it and be done with it as soon as possible. But the Court should not have lost sight of the fact that hurried justice is as much denied as delayed justice.

B Mrs Sumari who appeared for the Republic informed us that the Republic did not support the appellant's conviction almost for the same reasons advanced by her colleague Counsel for the appellant. But she prayed either for a retrial of the appellant or the calling of the doctor before this C Court to give additional evidence. On the other hand Mr Merinyo thought that a retrial or calling the doctor would not serve any useful purpose, so he called for the acquittal of the appellant.

D On our part, we think that considering other evidence on record, we do not think acquitting the appellant would be fair and just. Since the non-calling of the doctor was not the only legal problem facing the appellant at the trial, calling him to give evidence before us, would not serve any purpose since the other problems we have demonstrated caused by the absence of Defence Counsel at the E trial would remain unattended.

In the circumstances we are satisfied that the appellant's conviction cannot be supported. We accordingly quash it and set aside the sentence of death. But we order the retrial of the appellant F before another judge according to law.

A

[zRPz]HAMIDU MUSSA THIMOTHEO AND MAJIDI MUSSA THIMOTHEO v REPUBLIC 1993 TLR 125 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

CRIMINAL APPEAL NO. 23 OF 1993 B
21 May, 1993
(From the conviction and sentence of the High Court of Tanzania at Arusha, Mushi, J.) C
Flynote
Evidence - Circumstantial evidence - Unbroken chain of circumstantial evidence linking the appellants to the death of the deceased - Whether can ground a conviction. D
-Headnote
The appellants were charged with and convicted of the murder of their father, and sentenced to death. The convictions rested solely on circumstantial evidence which the learned Trial Judge considered irresistibly pointed to their guilt. The appellants appealed against both conviction and E sentence arguing that the circumstantial evidence on which they were convicted did not irresistibly point to their guilt.
Held: The chain of circumstantial evidence linking the appellants to the death of their father is unbroken and therefore leads to no other conclusion but that the appellants were responsible for the death of their father. F
Case Information
Appeals dismissed.
No case referred to.
Makange, for the appellants. G
May 21, 1993.
[zJDz]Judgment
Mfalila, J.A., delivered the following considered judgment of the court: H
The two appellants were charged with and convicted of the murder of their father one Mussa Thimotheo. There was no direct evidence linking the appellants to the killing. Their convictions rested solely on circumstantial evidence which the learned Trial Judge considered irresistibly pointed to their I guilt. We sentenced them to death. They
1993 TLR p126
MFALILA JA
A lodged this appeal against both their convictions and sentences of death.
The deceased Mussa Thimotheo was employed by the Tanzania Railways Corporation and lived in the Railway Quarters at Tingatinga Village in Mwanga district. His sons the two appellants lived in a B separate house outside the Railways Quarters, but having no utensils of their own they used to take their meals at the deceased's house. On 2 October 1985 after working hours he left camp on his bicycle telling his workmate Shabani Nassoro (PW2) that he was going to the

shopping centre at C Handeni. This was the last time that he was seen alive for he never returned to the camp. On 4 October 1985 Shabani Nassoro became concerned for the non-appearance of the deceased both at his residence and at work. He therefore reported the fact of the deceased's disappearance to their superior at work. The following day, a search alarm was raised and the search for the deceased D began. The appellants were asked as to the whereabouts of their father, but they both denied any knowledge. In this they were not believed, they were therefore arrested and handed over to the police. Later on the same day the body of the deceased was seen floating in the nearby river and E recovered. Word was sent to the police authorities regarding the recovery of the body of the missing Mussa Thimotheo. The following day police arrived and collected the body. The post mortem examination revealed multiple cut wounds one of which caused a compound fracture of the occipital F bone exposing the brain. The cause of death was certified to be haemorrhage and shock. At this time the appellants were already in police custody, but the police party on the suggestion of the deceased's relatives passed by the appellants' house and conducted a search. This search was witnessed by neighbours such as Shabani Nassore (PW2) and Shabani Juma (PW3), relatives such G as Hamisi Juma (PW4) and Naulid Thimotheo (PW7) and a cell leader Athuman Mohamed (PW5). All these witnesses testified that in this search they recovered the following items wrapped in a sack and hidden under the bed in a room used by the appellants: two bicycle tyres, one bicycle stand, five H spanners and one panga which had blood stains. Hamisi Juma (PW4) identified the panga to belong to the second appellant Majidi while Athumani Mohamed (PW5) identified the bicycle parts to be parts from the bicycle of the deceased, explaining that he used to repair it. When later the I appellants were shown these items by Detective Godwin (PW6), they admitted that the panga was theirs but with regard to the blood on it they gave different explanations. While the

second appellant explained that the blood on the panga was animal blood from the Dik Dik they had A killed during a recent hunt, the first appellant said that he did not know how the panga came to be blood stained.

In their respective defences both appellants denied any involvement in the killing of their father. The B first appellant explained that he first heard of the deceased's disappearance from home on 4 October 1985 when he was told by Hamisi Juma (PW4) that the deceased had not been seen at home since 2 October 1985 and that a search for the deceased would be mounted on the following day 5 C October 1985. But he said that he was arrested on 5 October 1985 before the search began. He explained that he did not consider the deceased's prolonged absence from home unusual because he used to do that whenever he want to his shamba. He also denied the existence of any bad relationship between him and the deceased as deposed by his uncle Maulid Thimotheo (PW7). On D the allegation that he used to eat at the deceased's house he denied saying that more often than not he took his meals at the home of his aunt Chausiku Thimotheo who gave evidence as (DW1). But as she gave evidence at the instance of the court,

we whink in fairness she should have been labelled as a Court witness (CW). Lastly he denied any knowledge or connection with the articles allegedly E recovered from their house.

The second appellant Majid also denied any involvement in the killing of their father saying that he had left home on 2 October 1985 to go and visit his uncle Maulid Thimotheo (PW7) but he did not find him F at home. Only his aunt Chausiku was present. He remained there until 4 October 1985 when he returned home only to be informed that their father had not been seen since 2 October 1985. This he said did not worry him because it was not unusual for the deceased to be absent from home for G several days whenever he went to his shamba. But he said that he was arrested on the following day 5 October 1985 and added that he knew nothing about all the articles allegedly recovered from their house.

In a well written and reasoned judgment the learned Trial Judge held that although there was no H direct evidence linking the two appellants to the death of the deceased the circumstantial evidence adduced by the prosecution against them was such that it only pointed to their undoubted guilt.

In this appeal the appellants complained that the circumstantial evidence on which they were convicted did not irresistibly point to their guilt. I

1993 TLR p128

MFALILA JA

A The question then is what is the circumstantial evidence which was used to convict the appellants was it such that it pointed to no other conclusion but their guilt?

The first link in the chain of circumstantial evidence are the items which were recovered after a B search of the appellants' house. These included a pair of bicycle tyres, a bicycle stand, five spanners as well as a panga with blood stains. There was evidence which was not gainsaid that the appellants owned no bicycle or any other mode of transportation. It was therefore surprising that bicycle parts should have been found in their dwelling house. Their late father had a bicycle which he used on the C fateful day to travel to Handani shopping centre. The panga was blood stained. Again in their evidence they denied any knowledge of this panga. But during interrogation they had admitted ownership although they differed in explaining the presence of and the nature of the blood on the D panga. The second appellant said it was animal not human blood. But the Government Chemist confirmed in his report that it was human blood although its group could not be determined due to deterioration. The first appellant said that he did know how the panga came to be blood stained. Independent witnesses identified the panga that it belonged to the second appellant but that both of E them were using it. Hence although the identification of the bicycle parts by the bicycle repairer Shabani Juma (PW3) might attract some doubts, that of the panga found hidden under the appellants' bed and blood stained with human blood was beyond question. At the hearing of this F appeal, Mr Makange, learned counsel who advocated for the appellants, pointed out what he called co-existing circumstances which tended to weaken the inference of guilt from the circumstantial evidence assembled against the appellants. Firstly, with regard to the articles found and recovered G from the appellants' dwelling house he said that all these items were recovered from the appellants' house in their absence and that since the search was made a day after their arrest, there was every

possibility that these articles could have been introduced into the house by someone other than the appellants during their enforced absence, particularly so he said, because the appellants' dwelling H house was semi-finished without any meaningful locking mechanism. Secondly, he said that the blood on the panga was not identified to be the same group as the deceased's. Thirdly, he said that when the alarm was raised, the appellants neither ran away nor panicked. The learned Trial Judge I considered at length these likely weaknesses but rejected them for the reasons which he gave and we agree with him. We

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MFALILA JA

do not see how anyone who was bent on incriminating the appellants could then have proceeded to A hide under the bed the very incriminating articles. As to the identification of the blood group on the panga this would have carried some weight if the appellants had admitted that it was human blood and explained where it came from. But according to them, it was either animal blood or they did not B know how and with what blood the panga came to be stained. Hence, this, added to other circumstances to be narrated point to the only conclusion that the blood on the panga must be that of the deceased Mussa Thimotheo. Blood grouping in the laboratory is not the only way of linking a sample of blood to the subject in issue. Whereas in this case this is lacking for one reason or other C deductive methods can be used. With regard to the point that the appellants neither panicked nor ran away when the alarm was raised, we think it has no merit because running away would have been the most stupid thing to do. Their own father was dead and they had already arranged their line of D defence. As to panicking, the cell leader Athuman Mohamed (PW5) stated that the second appellant was uncertain and unsettled in his behaviour as he tried to answer the questions as to what had happened to their father on 2 October 1985. E

The second link in the chain of circumstantial evidence is the conduct of the appellants. Firstly, they did not report the disappearance of their father with whom they were in daily contact at least during meal times. They showed no concern and remained silent and the matter was raised by neighbours and co-workers. They explained that to them the deceased's disappearance was not unusual as he F had done so several times previously whenever he went to his shamba. This explanation seems to us untenable. The deceased was a regular employee of the Railways Corporation. How then could it have been possible for him to disappear from the camp for several days thus absenting himself from G work for so many days. If this absenteeism had been a regular routine of the deceased, he would have got himself into trouble with his employers a long time back. We are therefore satisfied that the appellants did not raise an alarm over their father's disappearance or even report it at this work place H because they knew what they had done to him. Secondly, they told a number of lies in a situation where, had they been innocent, telling the naked truth was the most natural and easiest thing to do. They lied about their presence at the camp when their father left on 2 October 1985. The first I appellant said that the last time he had had contact with the deceased was on 20

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MFALILA JA

A September 1985, and that he only went back to the deceased's house on 4 October 1985 when he heard of his disappearance. All this time he said he was eating at his aunt's place. The second appellant explained that he had been away from home since 2 October 1985 and that when the B alarm was raised he had just come back. But their close neighbour Shabani Nassoro (PW2) who saw the deceased as he left for Handeni on 2 October 1985, confirmed that both appellants were at the camp when their father left. Shabani Juma (PW3) said that the appellants were lying when they claimed that they were not in the village at the relevant time. They also lied when they denied eating C food regularly with their father claiming that more often than not they used to take their meals at their aunt's house. Their aunt Chausiku Thimotheo vehemently denied this allegation saying that even at the time when she lived in the village and this was a long time back, the appellants hardly visited her and that ever since she had been living in Tanga. It is a truism that lies by the accused on D their own can never form the basis for a conviction, but certainly they can be part of a chain. In this case, the only reason why the appellants sought to distance themselves from the deceased, denying that they regularly took meals at his house was to break the link to prevent people from wondering E why they failed to note and report their father's disappearance, someone with whom they were in daily contact at meal times.

The third and last link was the motive. The deceased's brother Maulid Thimotheo (PW7) said in his F evidence that the deceased had told him that the appellants had threatened to kill him allegedly because they resented his act of selling the family cattle. The deceased had told him that the situation was so bad that they were hardly on talking terms. PW7 had promised the deceased that he would come and try to talk to him and his sons. But the deceased was killed before he undertook G this mission. The appellants denied the existence of any feud between them and their father. But we believe that PW7 could not have invented this story. Indeed, the appellants themselves had at one time made a similar complaint to him regarding the bad relationship obtaining between them and their father.

H Accordingly like the learned Trial Judge, we are satisfied that the chains of circumstantial evidence linking the appellants to the death of their father is unbroken and that therefore it leads to no other conclusion but that the appellants were responsible for the death of their father. Their convictions and I sentences were in the circumstances well founded. We dismiss both appeals in their entirety.

1993 TLR p131

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[zRPz]JOHN JOSEPH ONENGE AND JULIUS SENENE v REPUBLIC 1993 TLR 131 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

CRIMINAL APPEAL NO. 24 OF 1993 B
21 May, 1993

(From the conviction of the High Court of Tanzania at Arusha, Munuo, J.) C

Flynote

Criminal Practice and Procedure - Adjournment of cases - Statutory control of adjournments and remand of accused in custody - Need for a certificate from specified officers stating the need and grounds should further D orders of adjournments and of remand custody of the accused be necessary - section 225(1) and (4) of the Criminal Procedure Act, 1985 - Consequences of breach of such mandatory statutory provisions.

-Headnote

The appellants were convicted of armed robbery by the District Court. During trial the learned E magistrate adjourned the case from time to time and remanded the accused in custody for an aggregate exceeding sixty days without a certificate by specified officers stating the need and grounds for such further orders of adjournment and of remand custody of the accused. The Court of Appeal considered this issue and the consequences of failure to comply with the mandatory statutory F provisions of s 225(1) and (4) of the Criminal Procedure Act, 1985.

Held: (i) The Trial Court breached the mandatory provisions of s 225(1) and (4) by making orders of adjournment and of remanding the appellants in custody for an aggregate of more than 60 days without any certificate of a specified officer stating the need and grounds for such further orders; G

(ii) Such breach of a mandatory statutory provision, which breach does not affect the substance of the trial does not render the trial a nullity.

Case Information

Appeal dismissed.

No case referred to. H

C.J. Maruma, for the appellant.

Mrs. M. Lyimo, for the respondent.

[zJDz]Judgment

Kisanga, J.A., delivered the following considered judgment of the court: I

1993 TLR p132

KISANGA JA

A Both appellants were convicted by the District Court for the offence of armed robbery contrary to ss 285 and 286 of the Penal Code and were each sentenced to thirty years' imprisonment. They appealed unsuccessfully to the High Court hence this second appeal. In this Court both appellants B were advocated for by Mr C J Maruma Advocate; the respondent Republic was represented by Mrs M Lyimo, Senior State Attorney.

Both Courts below found that the house of the complainant (PW2) was broken into in broad daylight and a number of items of property were stolen from there. The appellants were seen and identified at C the scene but they managed to run way and could not be arrested. Subsequently, however, the appellant Julius Senene was found in possession of a radio which was one of the items stolen from the broken house of PW2.

Mr Maruma filed and argued a total of nine grounds of appeal seeking to raise a number of points of D law. He strongly criticised the High Court for not holding that the charge was defective. The charge as laid read as follows:

`Offence section and law: Armed robbery c/s 285 and 286 of the Penal Code cap 16 vol 1 of the Particulars of E Offence: John s/o Joseph Onenge and Julius s/o Senene Mosha are charged on 25th day of February 1991 at about 12:30 hrs at Ismalia Road within the Municipality and District of Moshi, Kilimanjaro Region did steal one pistol make Browning No 5201 and 14 bullets valued at Shs 150,000/= one Normade radio band 6 valued at Shs 60,000/=, one F wrist watch Oris valued at Shs 16,000/=, one golden necklace valued at Shs 25,000/= and cash Shs 32,000/=, all total valued at Shs 281,000/= the property of Seby s/o George Anjaria and immediately before the time of such stealing did threaten one Victus s/o Joseph by firing one bullet into the air in order to obtain or retain the things G stolen.'

The learned counsel vigorously contended that armed robbery as an offence does not exist under the Penal Code. To use his own words `That offence is yet to be created by the Legislature'. In his view H the only offence which exists under the Penal Code is that of robbery as created by s 285 and punishable under s 286 of the Code.

Referring to a passage in the judgment of the High Court in which the learned Judge had stated that the appellants were properly sentenced under Act 10 of 1989, Mr Maruma submitted that that was completely wrong because the said Act 10 of 1989 did not create the offence of armed robbery. In his I view that Act only makes

penalty provisions which prescribe inter alia a minimum of 30 years' imprisonment for armed robbery A an offence which is non-existent. He strongly emphasized the point that the provision under Act 10 of 1989 prescribing a minimum of 30 years' imprisonment for armed robbery is meaningless unless and until Parliament enacts a law creating the offence of armed robbery. B

We have considered these arguments very carefully. Mr Maruma is quite right in submitting that Act 10 of 1989 does not create the offence of armed robbery. It only makes provisions for the punishment of different types of robbery. But we think that it is wrong to say that the offence of armed robbery does not exist under our law. Our view is that on a true construction of s 285 and 286 of the C Penal Code read together with s 5(b) and (bb) of the Minimum Sentences Act as amended by Act 10 of 1989, the offence of armed robbery does exist. The provisions of these sections are set out hereinbelow: Section 285 of the Penal Code provides that: D

`285. Any person who steals anything and, at or immediately before or immediately after the time of stealing it, uses or threatens to use actual violence to any person or property in order to obtain or retain the thing stolen or to prevent or overcome resistance to its being stolen or retained is guilty of the felony termed "robbery".' E

Section 286 of the Code provides that:

`286. Any person who commits the felony of robbery is liable to imprisonment for twenty years. If the offender is F armed with any dangerous or offensive weapon or instrument or is in company with one or more other person or persons, or if at or immediately before or immediately after the time of the robbery, he wounds, beats, strikes or uses any other personal violence to any person, he is liable to imprisonment for life, with or without corporal punishment.' G

And s 5(b) and (bb) of the Minimum Sentences Act as amended by Act 10 of 1989 provides inter alia that:

`5(b) where a person is convicted of robbery, the Court shall sentence him to imprisonment for a term of not less than fifteen years; H

(bb), where any person is convicted of armed robbery, the Court shall sentence him to imprisonment for a term of not less than thirty years; . . .'

Upon reading the three provisions together it is discernible that I

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KISANGA JA

A s 285 of the Penal Code creates the genus of the offence of robbery by defining that offence and spelling out the ingredients which constitute it. Section 286 of the Code prescribes punishment for ordinary robbery and for aggravated types or species of robbery. Thus the section prescribes the B punishment of twenty years' imprisonment for ordinary robbery and life imprisonment with or without corporal punishment as a general punishment for various types or species of aggravated robbery, including armed robbery. And s 5(b) and (bb) of the Minimum Sentences Act as amended by Act 10 of 1989 prescribes a minimum of fifteen and thirty years' imprisonment for ordinary robbery and C armed robbery respectively.

Upon this construction, therefore, the appellants who were found to have been armed with a pistol at the time of committing the offence, were properly charged with and convicted of the aggravated species of armed robbery under s 285 and 286 of the Penal Code. Likewise they were properly D sentenced to a minimum of thirty years' imprisonment under s 5(bb) of the Minimum Sentence Act as amended by Act 10 of 1989.

The view was also expressed that the charge as laid ought to have cited in the statement of offence Act 10 of 1989 as the penalty provision on which the charge was based, and that failure to do so did E prejudice the appellants. We think, however, that this was not necessary. The statement of offence did cite s 285 and 286 of the Penal Code as the provisions on which the charge was based. Furthermore the statement of offence alleged armed robbery and the particulars of the offence alleged that the appellants used a pistol in committing the offence. That in our view sufficiently F informed the appellants as to what type of aggravated robbery they were being charged with, so that they could prepare their defences accordingly. We, therefore, can find no justification in Mr Maruma's criticism that the charge was defective.

G Closely connected with this was the allegation that the District Court had acted in excess of its jurisdiction when sentencing the appellants to thirty years' jail. Mr Maruma contended that in terms of s 170 of the Criminal Procedure Act the sentencing power of the District Court is limited to a H maximum of only eight years' imprisonment, and therefore that court had no

authority to impose thirty years on the appellants. It seems to us, however, that the learned Counsel has misapprehended the meaning of s 170 of the Criminal Procedure Act. The relevant provisions of that section state that:

I `170(1) A subordinate Court may, in cases in which such sentences are authorised by law, pass the following sentences -

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KISANGA JA

(a) imprisonment for a term not exceeding five years; save that where a Court convicts a person for a scheduled A offence it may, if such sentence is authorised by law, pass a sentence of imprisonment for such offence for a term not exceeding eight years;'

This is no doubt the provision on which Mr Maruma relied for his submission. However, the learned B Counsel failed to grasp the import of ss (2) which qualified the provisions of ss 91) above. The relevant provisions of ss (2) read as follows:

`(2) Notwithstanding the provisions of ss (1) - C

(a) a sentence of imprisonment -

(i) for a scheduled offence which exceeds the minimum term of imprisonment prescribed in respect of it by the Minimum Sentences Act 1972; D

(ii) . . . .

(b) . . . .

(c) shall not be carried into effect, executed or levied until the record of the case, or a certified copy of it, has been transmitted to the High Court and the sentence or order has been confirmed by a Judge.' E

The combined effect of these provisions as reproduced is that a Dubordinate Court first, is enjoined to impose on the offender the minimum prison term prescribed for the offence by the Minimum Sentences Act; in other words the Court has no discretion in the matter to pass any lesser sentence. F And secondly, in a deserving case, the Court may in its discretion sentence the offender to a prison term which is longer than the minimum prescribed for the offence but where this is done, it is required that such longer prison term has to be confirmed by a judge of the High Court before it is G carried into effect, executed or levied.

In the present case, the prison term of thirty years imposed by the District Court was, as was shown earlier, the barest minimum prescribed for the offence by the Minimum Sentences Act as amended by Act 10 of 1989. In terms of ss (2) as reproduced above, that sentence was clearly within the H sentencing powers of that Court. Indeed, not only was the District Court obliged to pass that sentence, but it could also in its discretion if the circumstances called for a stiffer penalty, have meted out a longer prison term subject, however, to confirmation by the High Court. I

In yet another ground Mr Maruma criticised the High Court for

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KISANGA JA

A failing to hold that the trial by the District Court was a nullity under s 225(1) and (4) of the Criminal Procedure Act. The two subsections of s 225 above cited in effect make in unlawful for

a court in the trial of a case such as this one to adjourn the case from time to time and to remand the accused in B custody for an aggregate exceeding sixty days, except upon certificate by specified officers stating the need and grounds for such further orders of adjournment and of remand custody of the accused.

Admittedly there was a breach of the mandatory statutory provisions of s 225(1) and (4) of the C Criminal Procedure Act. The Trial Court made orders of adjournment and of remanding the appellants in custody for an aggregate of more than sixty days without any certificate of a specified officer stating the need and grounds for such further orders. Now the question is whether such D breach rendered the trial a nullity as urged by Mr Maruma. We think it did not. The mandatory provision under s 225(1) and (4) mentioned above is one of a procedural nature. It is a provision which seeks mainly to safeguard the liberty of an accused person. It was not alleged nor is it apparent from the record, that the breach of that provision has affected the appellants' trial or prejudiced them in any way, say by making it impossible to find or to communicate with Counsel. In E our view such breach of a mandatory statutory provision which breach does not affect the substance of the trial does not render the trial a nullity. He accordingly rejects this ground. We should add, however, that the Trial Courts should be more vigilant in the application of s 225(1) and (4) of F the Criminal Procedure Act above cited in order to make the provisions which seek to safeguard the rights of the accused meaningful.

Again it was alleged that the Trial Magistrate had failed to call essential evidence. This was in relation G to the first appellant John Onenge who in his defence of alibi had claimed that at the time of the commission of the offence he was in police custody apparently in connection with some other offence. In answer to cross-examination he is recorded as saying that he did not know the importance of calling the officer in charge of the police station in question to produce the lock up H register in support of the alibi. Mr Maruma, therefore, submitted that in those circumstances the Trial Court erred in failing to call for the said lock up register which would have provided the necessary evidence to determine whether or not the appellant could have been at the scene of crime on 25 February 1991 as alleged.

I We can find no merit in this complaint. The appellant was seen

and identified at the scene of crime by PW1 and PW3 on 25 February 1991. His co-accused, Julius A Senene, in his cautioned statement to the police (exh P5) stated that the appellant called on him on 25 February 1991. And PW9 testified that he and other members of `Sungu Sungu' arrested the appellant in the dead of the night on 26/27 February 1991 on suspicion when the appellant and B another person tried to run away with some luggage in their possession upon seeing the `Sungu Sungu' following them. Thus there was abundant evidence before the Trial Magistrate showing that on 25 February 1991 the appellant was not at police lock up as he claimed. He was free and he could C have been at the scene of crime on 25 February 1991, the day of commission of the offence. Thus the lock up register was really not necessary for the purpose of determining whether or not the appellant was at the scene at the time of the commission of the offence, and hence the Trial Magistrate was not obliged to call for it. D

Criticism was also leveled against the procedure of tendering exhibits in evidence. The radio which was stolen in the course of committing the offence charged in this case was tendered in evidence as exh P2 by its owner (PW2). Criticising this Mr Maruma submitted that the radio ought to have been E tendered by the police officer who was keeping custody of it. However, we can find no substance in this complaint. PW2 testified that exh P2 was stolen from his home during the commission of the offence charged and the appellant Julius Senene confirmed that exh P2 was the same radio which the police had seized from him. Thus so long as the identify of exh P2 was not in dispute, we could F see no valid reason why its owner could not properly produce it in evidence.

It should be borne in mind that the object of the rule that an exhibit should be produced by the person who had custody of it is to ascertain the identity of the said exhibit as the very one which it is claimed connects the accused with the offence charged. In the instant case both the prosecution and the G defence are agreed that exh P2 the radio stolen during the commission of the offence charged is the very one found in possession of the appellant, thereby implicating him with the offence charged. In such circumstances it is pointless to insist on the production of the radio by the police who had kept H custody of it.

And lastly Mr Maruma criticised the High Court for failing to find that the Trial Magistrate had written the judgment before hearing the defence case. Advancing this complaint particularly in relation to the I second appellant Julius Senene, the learned Counsel

A contended that the irregularity meant that the Magistrate did not consider the defence case. This, he want on, necessarily prejudiced the defence thereby vitiating the whole judgment.

There is no doubt that this is a serious allegation, and we must make it plain that if it were founded, it B would have far reaching consequences. However, upon a careful scrutiny of the record, we are of the opinion that the allegation is not substantiated. The judgment of the Trial Magistrate is about four and a half typed pages. The record shows that the Magistrate delivered that judgment on the same day at the same sitting after concluding the defence case and without any adjournment during which C to compose the judgment. Counsel submitted that such a long judgment must have been written before the proceedings were concluded and in particular before the defence was heard. Deferring to an endorsement on the record which shows that the defence case was adjourned to 4 September 1991 for continuation while the judgment is dated 3 September 1991. Mr Maruma stated that this D confirmed his claim that the judgment must have been written before the defence was heard.

As intimated earlier, however, we are not satisfied that this allegation has been substantiated. The second appellant, Julius Senene, was the last to give evidence in which he mentioned one Jambii as E the person who had brought a radio to him, and indeed this was the backbone of his defence. That fact is clearly reflected and duly considered in the judgment of the Trial Magistrate. But a far as we could ascertain, that fact is not reflected in the evidence of any other witness. Then the question is: If the Magistrate had written his judgment before hearing the

defence case where did he get this fact F from? We specifically put this question to Mr Maruma but he could give no answer to it.

Mr Maruma had informed us from the bar that according to his instructions, during the morning of the G day the judgment was given the Magistrate had recorded the whole of the defence for the first appellant and the examination-in-chief of the second appellant Julius Senene. He then adjourned the case for cross-examination of the appellant Julius which, according to the record, was a brief H covering only about six lines. After that judgment was delivered very late in the afternoon at about 5 pm. Therefore, it may be that during the long adjournment after the morning session the Magistrate started to compose his judgment basing it on the bulk of the prosecution and the defence evidence already recorded and then rounded it off in Court after the brief cross-examination of the appellant I Julius during the afternoon session.

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On the issue that the defence case was adjourned on 4 September 1991 for continuation while the A judgment is dated 3 September 1991, we are satisfied that this was only a mix up by the Magistrate in the recording of dates. The true position is that the judgment was dated and delivered on 4 September 1991 and not 3 September 1991 as the record purports to show. For Mr Maruma B conceded that the defence of the second appellant Julius was recorded on 4 September 1991, the day the judgment was delivered. Yet the endorsement on the record shows that it was recorded on 3 September 1991. It was therefore a slip for the magistrate to endorse that the defence of the appellant Julius was recorded on 3 September 1991 when in fact it was recorded on 4 September C 1991. It was equally a slip that he endorsed on the record that the judgment was dated and delivered on 3 September 1991 when in fact it was dated and delivered on 4 September 1991.

After a careful examination of the record, we are satisfied that the criticisms leveled against the D decision of the High Court are unfounded and the appeal is without merit. The High Court rightly upheld the appellants' convictions and the sentences imposed on them. The appeal, therefore fails and is accordingly dismissed in its entirety. E

1993 TLR p139

F

[zRPz]LEKASI MESAWARIEKI v REPUBLIC 1993 TLR 139 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

CRIMINAL APPEAL NO. 31 OF 1993 G

21 May, 1993

(From the conviction and sentence of the High Courtof Tanzania at Arusha, Munuo, J.) H

Flynote

Legal Assistance - Accused allowed by the Court to prosecute his own case carrying the death penalty - whether accused could get a fair trial without legal assistance. I

1993 TLR p140

-Headnote

A The appellant was charged with and convicted by the High Court of the offence of murder. He was sentenced accordingly. During trial the Judge allowed the appellant to defend himself without assistance of a lawyer and without explaining to the accused the dangers he was facing in conducting his own defence in such a serious charge of murder.

B The appellant appealed to the Court of Appeal of Tanzania against both conviction and sentence.

Held: The appellant did not and could not get a fair trial without legal assistance.

Case Information

Appeal allowed.

C Case referred to:

1. Laurent Joseph and another v. Republic [1981] TLR 351.

Sabaya, for the appellant.

Mrs. Sumari, for the respondent.

[zJDz]Judgment

D Mfalila, J.A., delivered the following considered judgment of the court:

In the High Court sitting at Arusha the appellant Lekasi Mesawarieki was charged jointly with his E fifteen-year-old son Zephania Mesawarieki with the offence of murder. His son was acquitted, but he was convicted as charged and sentenced to death. He lodged this appeal against both his conviction and the sentence of death.

Before us, Mr Sabaya, learned Counsel who appeared for the appellant argued two grounds of F appeal after abandoning the second ground. In ground No 1 the appellant complained that the learned Trial Judge erred in law and fact when she allowed the appellant to proceed to defend himself on such a serious charge of murder without availing him with the services of a lawyer. During the G hearing, Mr Sabaya argued that the appellant was greatly prejudiced by being allowed to prosecute his own case involving such a serious charge carrying the death penalty. He added that for the same reason that this Court ordered a retrial in Laurent Joseph & Another v Republic (1) a retrial should be ordered in the present case.

H In reply Mrs Sumari who had initially supported the appellant's conviction arguing that he had freely informed the Court that he was prepared to proceed with the trial on second thoughts she conceded that the appellant was prejudiced by proceeding with the trial without Counsel, hence in her view the I appellant did not get a fair trial.

1993 TLR p141

MFALILA JA

The record shows that when the trial of the appellant and his young son opened on 29 September A 1992 the following is what transpired:

1st accused:

If no advocate has turned up to defend us we shall conduct the defence by ourselves. The case should not be B adjourned.

2nd accused:

Let the case proceed. We shall defend ourselves.

These statements by the appellant and his young son appear to have been given spontaneously, for C they are not preceded by any comments or address by the Court. After recording those spontaneous statements, there was no attempt by the Court to explain to the accused the dangers that they were faced in conducting their own defence in such a serious charge of murder. The Court D simply ordered the trial to proceed as schedules oblivious of the fact that one of the accused persons was just a child. As it turned out, the going proved too difficult for the appellant. When cross-examined by Mrs Lyimo, he is recorded to have replied at one stage:

`I was not able to ask anything I wanted because I am not literate and the case has many corners.' E

We think that this statement sums up graphically the difficulties which the appellant and his son faced in the conduct of their defence at the trial. We are thus inclined to agree with both counsel that F the appellant did not and could not get a fair trial without legal assistance.

For these reasons we allow the appeal, quash the appellant's conviction and set aside the sentence of death. However in view of the state of the evidence on record, we order that the appellant be G retried before another judge in accordance with the law.

1993 TLR p142

A

[zRPz]RICHARD VENANCE TARIMO v REPUBLIC 1993 TLR 142 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

B CRIMINAL APPEAL NO. 29 OF 1993

21 May, 1993

(From the conviction and sentence of the High Court of Tanzania at Arusha, Mroso, J.)

Flynote

C Criminal Practice and Procedure - Assessors - Directions to assessors - Trial judge misdirects assessors on the nature of provocation - Assessors fail to determine and advise on the provocative nature of the deceased's words - Effect of such misdirection.

D Criminal Law - Provocation - Deceased uttered words tending to show that she had an adulterous association with some men - The test of provocation.

-Headnote

E The appellant was convicted of the murder of his wife and was sentenced to death. Among the defences raised during trial was provocation; the appellant had contended that his wife made statements which tended to show that she had adulterous associations with some men. When giving directions to the assessors, on the question of provocation, the learned Trial Judge put emphasis on alleged or suspected adultery as constituting provocation and not the words uttered by F the deceased. This way of directing the assessors was attacked on appeal.

Held: (i) The immediate alleged provocation was not the deceased's adultery, but rather the words allegedly uttered by the deceased when asked where she had been and why she had gone out without telling the appellant;

G (ii) The test in this case was on the provocative nature of the deceased's words, whether the words themselves were capable of provoking an ordinary man of the appellant's community to induce him to react in the manner the appellant did, not whether these words suggested or amounted to a confession of adultery by the deceased;

H (iii) The learned Trial Judge misdirected the assessors on the question of provocation and this misdirection resulted in failure by the assessors to determine and advise on the provocative nature of the deceased's words;

(iv) Before a conviction for murder can be upheld in a situation where there was a misdirection or non-direction on the question of provocation the following two conditions must be present: firstly the omission must have been deliberate on a view of the evidence taken by I the judge and,

1993 TLR p143

secondly, the judge must have made a specific finding making it clear that he would in any A case have overridden the contrary opinions of the assessors the contrary;

(v) In the present case, the assessors were misdirected away from the true nature of the provocative act; so neither the assessors nor the judge made any finding on it.

Case Information

Appeal allowed. B

Cases referred to:

1. Wafula s/o Waninira v. R. [1957] EA 498.
2. Bullard v. R [1957] 3 WLR 656.
3. Tulubuzya Bituro v. Republic [1982] TLR 264. C
4. Abdullahi Ali v. R [1958] EA 725.

Ngalo, for the appellant

Mrs. Lyimo, for the respondent

[zJDz]Judgment

Mfalila, J.A. delivered the following considered judgment of the court: D

The appellant Richard Venance Tarimo was convicted of murder of his wife Delfina Richard by the High Court sitting at Moshi and was sentenced to death. He filed this appeal consisting of two E grounds against both his conviction and the sentence of death. In ground 1, he complained that the Trial Court ought to have considered the evidence that the appellant and the deceased had been drinking for a long time and that at the time of the commission of the offence the appellant was still under the influence of alcohol. In Ground 2 he complained that the Trial Court ought to have held that F there was sufficient provocation to reduce the offence of murder to manslaughter.

Apart from the appellant, there was no other person who witnesses the deceased being assaulted. The two neighbours, (PW6) Orest Ntaimo and his wife Akwilina Orest (PW7) who arrived at the G scene in answer to the cries of the deceased, found the appellant standing at the door of

his house holding the door frame. When they asked him what was the matter, the appellant ordered them to go away and threatened to teach them a lesson if they dared to come any nearer. At being so H threatened, the two retreated to the safety of their home. But they heard the deceased crying from inside the house and lamenting that she was dying leaving behind her children as orphans. The next day they heard of Delfina's death and reported the incident to the police who came to the village and arrested the appellant. I

1993 TLR p144

MFALILA JA

A At his trial the appellant explained that the deceased Delfina was his wife whom he regrettably killed. Narrating the circumstances of her death, he said that on the day in question, he and the deceased went to drink pombe at 5 pm and they returned home at 8 pm. On their way home, they B met two men one of whom he identified by his voice to be Orest (PW6). Orest then attacked him and threatened to teach him a lesson because he alleged the appellant was back-biting him. He, however, managed to free himself from Orest enabling him and his wife to proceed home where they slept. But later during the same night as he and the deceased were asleep, he woke and realised C that the deceased was not in bed with him. He went out to look for her thinking that she had gone to the latrine, but she was not there. He decided to wait on the veranda. At last she appeared coming along the path leading from Orest's house. When they were both inside the house, he asked her D where she had been and why she had gone out without informing him. She replied:

`Mimi sichungwi. Kama huko Dar es Salaam una wanawake na mimi nina wanaume,'

E and pushed him. The appellant said he fell on the table, the deceased also fell over him. There was a knife on the said table which he picked up intending to put away. But she also held it and a struggle for the knife between the two of them ensued. In the course of this struggle, he said, he stabbed her accidentally. He does not know how many times he stabbed her but he was shocked at F what he had done. He slept until the following morning. He explained that the deceased sustained several cut wounds because they struggled over the knife.

Both in his summing up to the Assessors and his judgment, the learned Trial Judge considered that G three defences were open to the appellant, namely provocation, self-defence and accidental killing. The learned Judge considered all these three defences and rejected them as did the assessors. He therefore found the appellant guilty of murder as charged and sentenced him to death.

At the hearing of this appeal, Mr Ngalo who advocated for the appellant, argued that as the appellant H and the deceased had been drinking for many hours before the attack, the appellant must have been so drunk that he was incapable of forming a specific intent.

On our part, we do not think the evidence on record supports Mr Ngalo's contention that the appellant was at the time so drunk that he was not in a position to form a specific intent. On his way home, the I appellant was strong enough to wriggle out of the clutches of his

1993 TLR p145

MFALILA JA

assailant and to continue with his journey home. On arrival at home, he was sober enough to wake A up and realise that his wife was not in bed with him. He went out looking for her thinking that she had gone to the latrine, and when he found that she was not in the latrine, he decided to wait on the veranda until she returned. We are satisfied that these are not the actions of a man so drunk that he cannot form an intent to do a specific act. What took place inside the house up to the fatal stabbings B of the deceased confirms this view.

On the second ground, Mr Ngalo argued that when all the evidence is considered including the appellant's cautioned statement, it is clear that provocation was established and that therefore the C Trial Court should have convicted the appellant of manslaughter not murder.

In connection with the defence of provocation, the learned Judge explained to the Assessors what this defence entails and after explaining its elements he directed them as follows: D

`Finding a wife in the act of adultery or in circumstances suggesting reliably that she had just been committing adultery can provide legal provocation.

Accused did not find the deceased in the act of adultery. But do you think he suspected she had just been E committing adultery with someone when she left him in bed during the fateful night? If so, were those circumstances that irresistibly suggested she had been committing adultery? Mere suspicion is not enough.

If you believe she must have been committing adultery when the accused saw her returning home and he killed her F in the heat of passion, then you can advise me to find the accused guilty of manslaughter only. You may consider in that connection, whether you believe the deceased, on being asked where she had been, said `Mimi nina wanaume wengi, ukipenda nenda ukatafute mke wa kwako' or `Mimi sichungwi, kama huko Dar es Salaam una G wanawake na mimi nina wanaume.' If you believe she replied in that manner to the accused, do such words indicate that she was confessing to having just committed adultery? Would that be unequivocal confession of adultery?'

By this direction the learned Judge wanted the Assessors to assume two things. Firstly, that the act H of provocation was the deceased's alleged or suspected adultery. Secondly, that the deceased had gone out at night leaving the appellant alone in bed and when she came back and on being asked where she had been, she answered in the manner the appellant alleges she did and therefore to consider I

A whether this answer suggested adultery on her part. We think it was a serious error to ask the Assessors to act on the basis of these two assumptions. In our view the immediate alleged provocation was not the deceased's adultery, but rather the words allegedly uttered by the deceased when asked where she had been and why she had gone out without telling the appellant. The judge B should therefore have directed the Assessors to answer the following questions:

(a) Whether on their way back from the pombe drinking, the appellant and his wife encountered Orest and another man and that Orest threatened to assault him.

C (b) Whether the deceased had gone out of the house in suspicious circumstances leaving the appellant alone in bed?

(c) Whether after her return and being asked where she had been, she answered the appellant in the manner the appellant alleged she did.

D (d) If the answer to (c) is in the affirmative, whether such words were provocative capable of inducing the kind of reaction exhibited by the appellant.

In other words, the test in this case was on the provocative nature of the deceased's words, whether E the words themselves were capable of provoking an ordinary man of the appellant's community to induce him to react in the manner the appellant did, not whether these words suggested or amounted to a confession of adultery by the deceased. This misdirection resulted in the failure by the Assessors to determine and advise on the provocative nature of the deceased's words. On his part, F the learned Judge also continued to act on this error and rejected the defence of provocation because adultery had not been established. The learned Judge rejected the defence of provocation because there was only suspicion that the deceased had committed adultery. In the circumstances G he held that the appellant killed the deceased to punish her because of his suspicions that she had committed adultery.

What then are the consequences of this misdirection? Except in very rare cases, both this Court and H the old Court of Appeal for East Africa considered such misdirection as fatal. In the case of Wafula s/o Waninira v R (1) the appellant who had been struck with a stick following a beer party, stabbed and killed his assailant. At his trial for murder, the appellant's plea of self-defence was rejected and was convicted and sentenced to death, but the Trial Judge failed to appreciate that the evidence I clearly raised an issue of provocation. On this omission, the Court of Appeal of East Africa

1993 TLR p147

MFALILA JA

(Forbes JA) held that the omission of the Judge to direct himself and the Assessors on the issue of A provocation was a serious misdirection and the conviction of murder could not stand. The Court quoted with approval the following passage from the judgment of the Privy Council in Bullard v R (2) at 659:

`It has long been settled law that if on the evidence whether of the prosecution or of the defence, there is any B evidence of provocation fit to be left to a jury, and whether or not this issue has been specifically raised at the trial by Counsel for the defence and whether or not the accused has said in terms that he was provoked, it is the duty of the Judge, after a proper direction, to leave it open to the jury to return a verdict of manslaughter if they are not satisfied C beyond reasonable doubt that the killing was unprovoked.'

On the consequences of such misdirection the Court held and state at 499:

`. . . It is once more stated that it is not open to a Court of Appeal to speculate on what the conclusion on the issue of D manslaughter would have been if the issue had been left to the jury. Similarly it is not for us to speculate on what conclusion would have been reached by the Assessors and the learned Trial Judge had they considered this issue. In the circumstances the conviction for murder could not stand.' E

Similarly this Court in Tulubuzya Bituro v Republic (3) considered this point and held that failure by a Judge to direct Assessors on the issue of provocation where evidence shows so, vitiates the entire F proceedings. In that case the record indicated Appeal for East Africa in an appeal from the Somaliland Protectorate in the case of Abdullahi Ali v R (4). In that case on the question of provocation the Trial Judge had held as follows: G

`. . . This followed her repudiation of the settlement and refusal to go home and allowance must be made for the `last straw' doctrine of commulative provocation, but, put at its highest, this could not excuse so grossly excessive reaction. For these reasons I was of the opinion there was no evidence of provocation on which a verdict of culpable homicide could properly be founded and I did not refer to such a possibility in the summing up.' H

On appeal, the Court of Appeal for East Africa held at para 708:

`With respect, we thought that it was not correct to remove the I

1993 TLR p148

MFALILA JA

A question of sufficient provocation or no sufficient provocation from the Assessors. However since the learned Judge in the next sentence of his judgment found as a fact, as he was entitled to do, that the story that the woman refused to go home at that time and in that situation, was not credible, it is quite clear that he would have overridden the assessors whatever their opinions on the question of provocation might have been. Accordingly his omission to B mention provocation in the summing up did not affect the result.'

The Court of Appeal then concluded the judgment with the following words:

C `We would add that we agree with the learned Judge that even if the appellant's statement were to be taken at its face value, the provocative received could not have justified so brutal a retaliation by the appellant. We merely point out that this matter should not have been removed from the consideration by the Assessors. The question whether or not the retaliation was out of proportion to the provocation was a question of fact which they should have been D required to take into consideration before giving their opinions.'

Thus before a conviction for murder can be upheld in a situation where there was a misdirection or E non-direction on the question of provocation, the following two conditions must be present. Firstly, the omission must have been deliberate on a view of the evidence taken by the Judge. Secondly, the Judge must have made a specific finding so that it is clear to this Court that he would in any case F have overridden the opinions of the Assessors to the contrary. In the present case, the assessors were misdirected away from the true nature of the provocative act so neither the Assessors nor the Judge made any finding on it. We are therefore in no position to speculate on what the conclusions might have been had the Assessors been properly directed on the provocative nature of the words uttered by the deceased or what view the learned Judge himself might have taken of these words. G We can only resolve this uncertainty in favour of the appellant and hold that his conviction for murder cannot stand. Mrs Lyimo who appeared for the Republic conceded as much and declined to support the appellant's conviction for murder.

H Accordingly we allow the appeal, quash the conviction for murder and set aside the sentence of death. Instead we find the appellant guilty of the offence of manslaughter and convict him accordingly.

On the question of sentence, we agree with Mrs Lyimo that this was a wicked assault on the I unfortunate woman and we also agree that the sentence to be imposed must reflect this fact.

1993 TLR p149

With all these factors in mind we sentence the appellant to fifteen years imprisonment. A

1993 TLR p149

C

[zRPz]SAMUEL SILANGA v REPUBLIC 1993 TLR 149 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

CRIMINAL APPEAL NO. 32 OF 1993

21 May, 1993 D

(From the conviction and sentence of the High Court of Tanzania at Arusha, Mroso, J.)

Flynote

Evidence - Burden of proof - Murder - Accused's right palm stained with blood which appears to be recent and about which accused keeps quiet when asked - Whether court may draw inference that accused's silence is not E consistent with his innocence.

Evidence - Burden of proof - Shifting the burden to the accused - Accused's palm stained with blood appearing to be recent - Whether requiring the accused to explain how he got the blood stain amounts to shifting the burden F of proof to the defence.

-Headnote

The appellant was convicted of murder and sentenced to suffer death. He appealed against both conviction and sentence. One ground of his appeal was that the burden of proof was improperly G shifted to the defence when, being found to have his right palm stained with blood, he was asked how he got it and he kept quiet. The Trial Court inferred guilt because the appellant kept quiet on how he got blood on his right palm. On appeal:

Held: (i) Once it was shown that the appellant's palm was stained with blood at a time when murder H involving stab wounds had just been committed in the neighbourhood, and no doubt suspicion was mounting high all over the place, one would expect the appellant to explain how he got his palm stained with blood; certainly it was in his best interest to do so;

(ii) The Trial Judge was perfectly entitled to draw the inference that the appellant's silence I could not be consistent with innocence.

1993 TLR p150

Case Information

A Appeal dismissed in its entirety.

No case referred to.

Sabaya, for the appellant.
J. Mono, for the respondent.
[zJDz]Judgment
B Kisanga, J.A., delivered the following considered judgment of the court:
This is an appeal against conviction for murder contrary to s 196 of the Penal Code, and the sentence of death imposed by the High Court (Mroso J) sitting here in Arusha. The appellant is C represented by Mr Sabaya, Advocate and the respondent Republic is represented by Mr J D Mono, Senior State Attorney.
The facts of the case may be summarised briefly as follows: The appellant is a brother of the D deceased woman, and their houses were in the neighbourhood of each other. Both of them were disputing over the ownership of a piece of land, and this dispute was pending in Court when this incident happened.
E On the material night the deceased was sleeping in her house when she suddenly noticed that her house was on fire and she tried to escape. The prosecution charged that as she got out, the appellant attacked her with a knife inflicting a number of stab wounds on her. She died in hospital only shortly afterwards as a result of the stab wounds.
F The appellant's defence was a mere denial coupled with a claim that on the material night he was sleeping in his house and did not go to the home of the deceased. The High Court rejected that defence and accordingly convicted the appellant as charged.
G Mr Sabaya filed and argued three grounds of appeal alleging inadequate identification of the appellant at the scene of crime, basing the appellant's conviction on uncorroborated evidence and shifting the burden of proof onto the appellant. None of these grounds, however, has any merit. On the issue of identification there was the evidence of Godfrey Lembris (PW1) and Solomon Nicolaus H Ukeled (PW2) who testified that they saw and identified the appellant at the home of the deceased. PW2 added that he saw the appellant actually stabbing the deceased and when the appellant saw him approaching the scene he (the appellant) ran away. Both witnesses who knew the appellant well before the incident, stated that they identified the appellant through moonlight and also through the I fire from the burning house of the deceased and that
1993 TLR p151
KISANGA JA
of PW1 which had also gone on fire. Indeed PW1 said that as he went out of his house he saw and A identified the appellant who was only three paces away.
Mr Sabaya submitted that there was conflict between the evidence of PW1 and PW2 on the one hand and that of PW3 (Christopher Laizer) on the other. PW3 had stated in his examination-in-chief B that there was no moonlight on the material night, contrary to PW1 and PW2 who said that there was moonlight. Counsel, therefore, contended that such conflict seriously weakened or rendered unreliable the prosecution evidence respecting the means of identifying the appellant at the scene of crime that night. The Trial Judge considered this issue. His views was that even if there was no C moonlight that night, there was light from the burning houses by which the appellant was adequately identified by the witnesses. While endorsing that view, we

are prepared to go further. It is noted that PW3 in his cross-examination by the prosecution is recorded as saying that he could not quite D remember if there was moonlight that night. We think that this fact could provide no good reason for discounting or reasonably doubting PW1 and PW2 who positively stated that there was moonlight on the material night. Had PW3 been consistent and maintained his earlier position that there was no moonlight that night, the view might have been different. E

Nor did the appellant's conviction rest on the evidence of visual identification alone. He was based also on a number of pieces of circumstantial evidence. There was the dying declaration of the deceased who told PW1, PW2 and PW3 at the scene that it was the appellant who had injured her. F Later on at the hospital PW6, a police officer, also recorded her statement to the same effect.

There was evidence that during the fracas that night the deceased and her sons, PW1 and one Julius, raised the alarm as they called for help and neighbours, including PW3, went to the scene in answer to such an alarm. However, the appellant who was also a neighbour did not show up. One G wonders why he did not? When the police called on him that same night and asked him to come out of his house after they had duly identified themselves, he refused to open the door until the police threatened to break it. The inference to be drawn is that the appellant declined to answer the alarm or to open the door because he knew that he had done wrong and he was now afraid of the H consequences.

What is even more suspicious is that upon coming out of his house, his right palm was stained with blood which appeared to be recent but on being asked how he got it he kept quiet. Mr Sabaya I submitted that

A the Court was not entitled to view the appellant's silence as something that went against him. He contended that to require the appellant to explain how he got his palm stained with blood amounted to shifting the burden of proof to the defence. With due respect to the learned Counsel, we think that such criticism is unjustified. Once it was shown that the appellant's palm was stained with blood at a B time when murder involving stab wounds had just been committed in the neighbourhood, and no doubt suspicion was mounting high all over the place, one would expect the appellant to explain how he got his palm stained with blood; certainly it was in his best interest to do so. It was odd, however, C that in the face of such circumstances he kept quiet when asked about it. We think that the Trial Judge was perfectly entitled to draw the inference that the appellant's silence could not be consistent with his innocence.

And lastly, there was the evidence of bad blood between the appellant and the deceased on account D of a dispute over a piece of land and that the dispute was pending in Court when the killing occurred. That would provide motive for the appellant to eliminate his rival.

We are satisfied that all this evidence amply demonstrated that appellant's guilt beyond any E reasonable doubt. There is no merit in the appeal which is accordingly dismissed in its entirety.

F

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Nyalali CJ, Makame JJA and Omar JJA

G CRIMINAL APPEAL NO. 45 OF 1993
4 June, 1993
H (From the judgment of the High Court of Tanzania at Morogoro, Kyando, J.)
Flynote
Evidence - Evidence of spouse - Compellability of spouses to give evidence against each other in criminal cases I - Admissibility of spouse's evidence - Evidence Act 1967, ss 130(2).
1993 TLR p153
-Headnote
The appellant was convicted of murder and sentenced to death. At his trial, his wife was compelled A to testify against him as a key prosecution witness. He appealed against conviction and sentence.
Held: The evidence of a spouse who has been compelled to testify against another spouse in a criminal case contrary to the provisions of s 130 of the Evidence Act 1967, is inadmissible and of no effect. B
Case Information
Appeal allowed. Conviction for murder quashed and substituted for manslaughter.
No cases referred to.
Miss D.K. Mutabuzi, for appellant. C
Sengwaji, for respondent.
[zJDz]Judgment
Nyalali, C.J., read the following considered judgment of the court:
The applicant, namely Matei Joseph, was charged and convicted in the High Court on circuit at D Morogoro for the offence of murder contrary to s 196 of the Penal Code and was sentenced to death as prescribed by law. He was aggrieved by the conviction and sentence hence this appeal to this Court. Miss Mutabuzi, learned Counsel from the Tanzania Legal Corporation represented the E appellant before us, whereas Mr Sengwaji, learned State Attorney represented the respondent Republic. The memorandum of appeal contains two grounds of appeal, but Miss Mutabuzi abandoned the second ground. The remaining ground states: F

`That the learned Trial Judge misdirected himself in law and in fact in not giving the appellant the benefit of doubt.'

According to the record of the trial in the High Court, much of the relevant facts are not in dispute between the parties including the killing by the appellant of his father-in-law, namely Zebedayo Tupa, G whose daughter, that is, Maria Zebedayo, was appellant's wife at the material time. It is common ground that the appellant's marriage to Maria Zebedayo had been bedevilled with marital problems for sometime prior to 10 September 1989 when appellant killed his father-in-law. Maria Zebedayo had H run away from the matrimonial home on

several occasions, and on the fateful day, she had been brought back to the appellant by the deceased. The appellant and the deceased had then gone out together for a drink of local liquor and when they returned to the appellant's home, they found Maria Zebedayo missing. That triggered off a quarrel I

1993 TLR p154

NYALALI CJ

A between the appellant and the deceased which led the appellant to inflict fatal stab wounds upon the deceased. Thereafter the appellant went to surrender himself and his weapon to the local authority, that is, Hassani Mgalusi (the Ward Secretary). Subsequently the appellant was taken to a B Justice of the Peace to whom he made an extra-judicial statement.

The only dispute in this case concerns the circumstances under which the appellant stabbed the deceased to death. Counsel for appellant has submitted to the effect that appellant could have been acting either under self-defence or provocation or under the influence of drink. We have examined C the evidence. Apart from the appellant, the only eyewitness to the incident is the wife of the appellant, that is, Maria Zebedayo, who gave evidence at the trial as the first prosecution witness (PW1). Unfortunately, according to the record of the trial, the provisions of s 130 of the Law of Evidence Act D 1967 concerning the compellability of spouses to give evidence against each other in criminal cases were not complied with by the Trial Court. Sub-sections (1) to (3) state:

`(1) Where a person charged with an offence is the husband or the wife of another person that other person shall be a competent but not a compellable witness on behalf of the prosecution, subject to the following E provisions of this section.

(2) Any wife or husband, whether or not of a monogamous marriage, shall be a competent and compellable witness for the prosecution -

F (a) in any case where the person charged is charged with an offence under chapter XV of the Penal Code or under the Law of Marriage Act 1971;

(b) in any case where the person charged is charged with an act or omission affecting the person or G property of the wife or husband, of that person or the children of either or any of them.

(3) Where the person whom the Court has reason to believe is the husband or wife, or, in a polygamous marriage, one of the wives of the person charged with an offence is called as a witness for the prosecution, H the court shall, except in the cases specified in ss (2), ensure that the person is made aware, before giving evidence, of the provisions of ss (1), and the evidence of that person shall not be admissible, unless the Court has recorded in the proceedings that this subsection has been complied with.'

I It is clear under the above cited provisions that in cases like this

1993 TLR p155

NYALALI CJ

one, which does not fall within the categories of cases stipulated under ss (2), the evidence of a A spouse, such as PW1, which is given contrary to the relevant mandatory provisions, is inadmissible and of no effect. That leaves us only with the evidence of the appellant himself, the

evidence of the Ward Secretary (PW4) and the appellant's extra-judicial statement, The evidence of PW4 who B seems to be a credible witness, excludes the possibility that the appellant could have been drunk to the extent of not being capable of forming a culpable intent. As to the issue of self-defence, it seems that there is no clear suggestion or assertion either in appellant's evidence at the trial or in his exculpatory statements to the ward secretary and the Justice of the Peace. The relevant part of his C evidence reads:

`As I was attending the call of nature Tupa approached me from behind and hit me with a piece of an iron which was a tractor part. I fell down and he started kicking me with his feet and fists. I lost self-control and as I was having a D knife then and also due to drink, I took out the knife and stabbed him with it in the stomach and it cut from one side of it to another. He left and started to run. I rose and due to the state in which I was I also started to run . . .'

As to the relevant part of his extra-judicial statement to the Justice of Peace, it reads in Kiswahili: E

`. . . alikuja kunivamia na kuanza kunipiga kwa vile alikuwa ananishembulia na kunitupa ehini. Daada ya kunitupa shini, nikapata kasire ndipe niliohomoa kisu nikamchoma kwa vile slinisukuma nilimehoma tumbeni na kiunoni. Nilivyoang aweumia nilikwenda CCM kutoa ripoti . . .' F

The thrust of this evidence is provocation and not self-defence. This evidence is consistent with appellant's statement to PW4 whose relevant part of his testimony reads: G

`He said he had truly killed him by stabbing him twice with a knife in the back in the stomach and that intestines had come out and he was totally finished. He said he had come to me for safety as he did not want to be bothered by people. He said I should take him where he should be taken for killing deceased. He said he had stabbed H deceased because deceased had got drunk and had gone to make `fujo' at his (accused's) house.'

In the light of the evidence therefore, the defence of self-defence I

A appears not to be available to the appellant. As to the defence of provocation, the Trial Court rejected it mainly on the basis of the testimony of PW1. But as already pointed out, PW1's testimony is inadmissible for non-compliance with the relevant provisions of s 130 of the Law of Evidence Act. B There is no other evidence to discredit the appellant's story. We are of the view that in the light of the available evidence, the defence of provocation cannot safely be excluded. We are bound therefore to quash the conviction for murder and substitute therefore a conviction for the offence of manslaughter contrary to s 195 of the Penal Code. Taking into account the circumstances of this C case and the fact that the appellant has been in custody since 1989, we think that a sentence of ten years from the date of his conviction - that is - from 10 April 1992 will meet the justice of the case. Accordingly, we allow the appeal by quashing the conviction for murder and substituting instead a D conviction for manslaughter, contrary to s 195 of the Penal Code and sentencing the appellant to ten years imprisonment commencing from 10 April 1992.

F

[zRPz]ABDALLAH HAMED v REPUBLIC 1993 TLR 156 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Makame JJA, Kisanga JJA and Omar JJA

CRIMINAL APPEAL NO. 43 OF 1990
G 17 June, 1993
(From the decision of the High Court of Tanzania at Dar es Salaam, Magessa, PRM, Ext. Jur.)
Flynote
H Magistrates' Courts Act - Extension of Appellate jurisdiction to magistrates - Order investing magistrate with extended jurisdiction not specifying categories of cases the magistrate may entertain - Whether the order is proper.
-Headnote
I In a second appeal the learned advocate for the appellant challenged the jurisdiction of the Principal Resident Magistrate who had been vested
1993 TLR p157
with extended appellate jurisdiction. His main attack was that the order investing the appellate
A jurisdiction did not comply with s 45(1) of the Magistrate's Courts Act 1984, in that it was too general. Counsel argued that the order ought to have specified the categories of cases the magistrate vested with appellate jurisdiction could hear and determine.
Held: (i) The order clearly intended that the magistrate should exercise all appellate jurisdiction ordinarily exercisable by the High Court; B
(ii) The Order, G.N. 121 of 1988, was not faulty.
Case Information
Appeal dismissed.
No cases referred to. C
M.R.M. Lamwai, for the appellant.
Kamba, for the respondent.
[zJDz]Judgment
Makame, J.A., delivered the following considered judgment of the court: D
This is a second appeal. The appellant Abdallah Hamed was sentenced by Kulolela, Senior District Magistrate, to be jailed for thirty years after he was found to have participated in a daylight robbery in the municipality of Morogoro. His co-accused, Kasimili Faustin Mogela, was similarly rewarded and E did not appeal. The present appellant did appeal, to the High Court, where Magessa, Principal Resident Magistrate, exercising Extended Jurisdiction, dismissed his appeal. Dr Lamwai, learned Advocate, represented the appellant in the appeal before us. Mr Kamba, learned State Attorney, F supported the Lower Court's decision.
Dr Lamwai did not have much room for argument, and we reckon he knew as much. This is a second appeal so there was hardly any scope for his intended effort in two of his three grounds of G appeal, touching on the burden and standard of proof. Both the Trial Court and the First

Appellate Court were satisfied that the appellant, at the material time a driver employed by the National Bank of Commerce at Morogoro, took part in the robbery by facilitating the flight of his co-accused, and other participants, from the scene of crime by driving them away in the National Bank of Commerce Land H Rover he was employed to drive. Dr Lamwai was left with only one ground - the first one, which sought to challenge Mr Magessa's jurisdiction to hear the first appeal. Dr Lamwai submitted that the Order which invested Mr Magessa with the appellate jurisdiction, ordinarily exercisable by the High Court, did not comply with s 45(1) of the Magistrate's Court Act. I

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MAKAME JA

A Section 45(1) of the said Act provides:

`The Minister may after consultation with the Chief Justice and with the Attorney-General, by order published in the Gazette -

(a) invest any resident magistrate, in relation to any category of cases specified in the order, with the appellate B jurisdiction ordinarily exercisable by the High Court.'

Now, the Order investing Mr Magessa with extended jurisdiction, GN 121 of 1988, was couched in the following terms:

1. This Order may be cited as the Magistrates' Courts (Extension of Appellate Jurisdiction) Order 1988.

C 2. Subject to s 46 of the Magistrates' Court Act 1984, the Magistrates specified in the Schedule to this Order, are hereby invested with the appellate jurisdiction ordinarily exercisable by the High Court.

SCHEDULE

1.

D 2.

. . .

8. I H Magesso . . . Principal Resident Magistrate Grade I

. . .

Dar es Salaam. D Z LUBUVA

E 6th April, 1988 Minister for Justice'

Dr Lamwai's complaint is that the order quoted above is bad for being too general. Learned Counsel submitted the category of cases Mr Magessa was empowered to hear appeals from should be F mentioned in so many words. We fail to appreciate the logic of this when the Order clearly intended that Mr Magessa should exercise all appellate jurisdiction ordinarily exercisable by the High Court. It would in the circumstances be not only unduly cumbersome but also obviously pointless to list out all the categories of cases. It would be different if it was intended that jurisdiction should be exercised by G Mr Magessa only in one category or only certain categories of cases. Then we would agree that such category or limited categories should have been specified, but as indicated, not otherwise.

H We respectfully agree with Mr Kamba, learned State Attorney that GN 121 of 1988 was not faulty in the circumstances. The appeal has not merit and accordingly we dismiss it.

1993 TLR p159

A

[zRPz]KUKUTIA OLE PUMPUN AND ANOTHER v ATTORNEY GENERAL AND ANOTHER 1993 TLR 159 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

CIVIL APPEAL NO. 32 OF 1992 B
23 July, 1993
(From the judgment and decree of the High Court of Tanzania at Arusha, Munuo, J.) C
Flynote
Constitutional Law - Suits against the Government - Statutory provision requiring the Minister's consent to sue the Government - Whether constitutional - Section 6 of the Government Proceedings Act 1967. D
-Headnote
The appellants sought to sue the Government. They applied for the Minister's consent to sue the Government as required by s 6 of the Government Proceedings Act 1967 but got no reply. They then E called upon the High Court to rule on the constitutionality of that provision of the law; it was null and void as it contravened the Constitution of the United Republic of Tanzania. The respondents did not wish to file a written statement of defence to the claim; instead they lodged with the Court a preliminary objection that the suit was incompetent for want of the Minister's consent to sue the Government. The learned Trial Judge ruled that section 6 of the Government Proceedings Act 1967 F was not unconstitutional and dismissed the suit as incompetent. The appellants to the Court of Appeal.
Held: (i) Section 6 of the Government Proceedings Act 1967 violates the basic human right guaranteed under arts 13(3) and 30(3) of the country's Constitution, of unimpeded access to the Court to have one's grievances heard and determined there; G

(ii) In considering any act which restricts fundamental rights of the individual, such as the right to free access to the Court of law in this case, the Court has to take into account and strike a balance between the interests of the individual and those of the society of which the H individual is part;

(iii) A law which seeks to limit or derogate from the basic right of the individual on grounds of public interest will not be declared unconstitutional if it satisfies two requirements:

(a) that it is not arbitrary; and

(b) that the limitation imposed by such law is not more than is reasonably necessary to I achieve the legitimate objective;

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A (iv) Section 6 of the Government Proceedings Act, 1967, as amended by section 6 of Act No. 40 of 1974 is unconstitutional because it violates the basic human right, guaranteed

under arts 13(3) and 30(3) of the country's Constitution, of unimpeded access to the Court to have one's grievances heard and determined there;

(v) Section 6 of the said Act is not saved by art 30(2) of the Constitution because it does not B meet the two requirements;

(vi) In terms of art 64(5) of the Constitution of the United Republic of Tanzania s 6 of the Government Proceedings Act, 1967, as amended by Act No. 40 of 1974 is void, and is accordingly struck out for being unconstitutional.

Case Information

C Appeal allowed.

Cases referred to:

1. The Director of Public Prosecutions v. Daudi Pete [1993] TLR 22.
2. Peter Ng'omango v. Gerson M.K. Mwangwa and Attorney General, [1993] TLR 77.

D 3. Himid Mbaye v. The Brigade Commander [1984] TLR 294.

4. Shabani Khamis v. Samson Goa and Another, High Court of Zanzibar, Civil Case No. 18 of 1983.
5. Khalfan Abeid Hamad v. The Director of Civil Aviation, High Court of Zanzibar, Civil Case No. 20 of 1986.

E A. Mughwai, for the appellants.

Mrs. A. Sumari, for the respondents.

Editorial Note: Section 6 of the Government Proceedings Act 1967 has since been repealed and replaced so as to conform with this judgment: Government Proceedings (Amendment) Act, 1994, F Act No. 30 of 1994.

[zJDz]Judgment

Kisanga, J.A., delivered the following considered judgment of the court:

G The appellants in this case sought to sue the Government in the High Court to recover damages for trespass assault and conversion. The plaintiff alleges, among other things, that the necessary fiat or consent to sue the Government had been sought but was withheld. The requirement for consent H to sue the Government is imposed by s 6 of the Government Proceedings Act 1967 as amended by Act 40 of 1974 (hereinafter to be referred to simply as s 6). Upon consent being withheld, therefore, the High Court was called upon by the appellants to rule on the constitutionality of s 6, and to hold that that provision was null and void as against the Constitution of the United Republic of Tanzania.

I The respondent Republic did not wish to file any written state-

ment of defence to the claim; instead it lodged with the Court a preliminary objection that the suit was A incompetent for want of the Attorney-General's consent to sue the Government. The case was then adjourned, upon application by Counsel, for written submissions after which the Court (Mrs J Munuo) ruled that s 6 was not unconstitutional, and proceeded to dismiss the suit as being B incompetent. It is from that ruling that this appeal now arises. Arguing the

appeal before us were Mr A Mughwai, learned Advocate, for the appellants, and Mrs A Sumari, learned State Attorney, for the respondent Republic.

In the course of hearing the appeal, and during the submission by Mrs Sumari, some doubt arose C whether consent to sue had, in fact, been sought and withheld as claimed by the appellant's Counsel. However, this doubt was resolved when Counsel for the appellants furnished the Court with documentary evidence that consent was in fact sought and refused. Upon receipt of this information D Mrs Sumari stated that hitherto she had been acting on wrong information sought from and supplied by the Attorney-General's Chambers, Dar es Salaam that the appellants had not applied for any consent to sue the Government. She added the because of such misinformation she did not E address the real issue which was before the High Court, namely, the constitutionality of the requirement of consent; instead she had concentrated on the contention that the suit was incompetent for want of consent. Asked what course she proposed to adopt, now that she was informed of the true position, she readily replied that the hearing of the appeal should continue, F adding that during the short adjournment, she had prepared herself sufficiently to respond to Mr Mughwai's submissions.

We continued with the matter even though we felt that the learned State Attorney needed more preparation in order to assist the Court in proceeding with the appeal which raised an important G constitutional issue.

The memorandum of appeal raised two grounds:

1. The Honourable Judge erred in law in not determining the real issue before the Court, ie

The interpretation and Constitutionality of the provisions of s 6 of the Government H Proceedings (Amendment) Act 10 of 1974 vis-à-vis the Constitution of Tanzania.

2. The Honourable Judge erred in failing to hold that s 6 referred to in para 1 herein is unconsitutional, obsolete and that where there is a dispute between a citizen and the Executive, the Executive cannot lawfully impede or obstruct access to High Court. I

1993 TLR p162

KISANGA JA

A On the first ground that the Trial Judge failed to consider and determine the issue before her, that is, the constitutionality of s 6, we think that there is merit in the complaint. Upon reading her brief ruling on the matter, covering just about two pages, it becomes apparent that the learned Judge either did not comprehend the issue before her or, if she did, she deliberately evaded it. Paragraph B 11 of the plaint states, inter alia, that:

`The plaintiffs will contend at the trial that it is not in law necessary to obtain the fiat as such requirement is null and C void as it seeks to contravene the basic structure of the Constitution of Tanzania and its specific provisions.'

The appellants specifically called upon the Court to consider the validity of s 6 as against arts 4(1), 108 and 13(6)(a) of the Constitution. These articles make provisions for separation of powers, confer D jurisdiction on the High Court to hear and determine complaints and provide

for the basic right to a fair hearing. Counsel had submitted that s 6 contravened these provisions of the Constitution and accordingly invited the Court to declare that section null and void.

E In disposing of the issue very briefly the Trial Judge simply said:

`Considering that the Government Proceedings Act 40 of 1974 was properly enacted by Parliament as stipulated in article 97 of the Constitution of the United Republic of Tanzania, it is sound law and does not infringe the provisions F of article 13 and/or article 108 of the Constitution.'

In our view this was, to say the least, a very superficial way of dealing with the issue which was before the Court. for, the fact that s 6 was duly enacted by a competent Legislature is no answer to G the question whether that section is valid or not as against the Constitution. It is one thing for a provision of the law to be properly or validly enacted by competent Legislature, but quite another for it to be constitutional; the two are not the same.

H The appellant did not allege or even suggest that s 6 was improperly enacted by the Legislation. Their claim was that s 6, although properly and duly enacted by the Legislature, offended some provisions of the Constitution, the supreme law of the land. It did so, the appellants continued, in a number of ways, primarily by denying them the opportunity of having their grievances heard and I determined by the High Court which was duly vested with such jurisdiction. There-

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KISANGA JA

fore what the appellants were asking for was a declaration under article 64(5) of the Constitution that A s 6 was null and void because it was inconsistent with the supreme law of the land. The learned Judge in merely stating that s 6 was sound law because it was properly enacted by a competent Legislature, did not address herself squarely to that issue, and to the extent of such omission she was clearly in error. B

The second ground is really an amplification of the first one. It specifies the matters which the Trial Judge had failed to deal with and to decide upon. Mr Mughwai submitted that s 6 is null and void and should be struck down because it violates the guaranteed right, under the Constitution, of unimpeded C access to the Courts to have one's grievances heard and determined. In this respect he specifically referred to arts 13(3) and (6)(a) and 30(3) of the Constitution, the provisions of which we reproduce hereinbelow for case of reference. D

`13(3) The civil rights, obligations and interests of every person and of the society shall be protected and determined by competent courts of law and other state agencies established in that behalf by or under the law. E

(4) . . .

(5) . . .

(6) For the purpose of ensuring equality before the law, the state shall make provisions:

(a) that every person shall, when his rights and obligations are being determined, be entitled to a fair hearing by the court of law or other body concerned and be

guaranteed the right of appeal or to another F legal remedy against the decisions of courts of law and other bodies which decide on his rights or interests founded on statutory provisions.

30(3) Where any person alleges that any provision of this part of this chapter or any law involving a basic right or duty G has been, is being or is likely to be contravened in relation to him in any part of the United Republic, he may, without prejudice to any other action or remedy lawfully available to him in respect of the same matter, institute proceedings for relief in the High Court.' H

Learned Counsel submitted that the combined effect of violating these provisions has far reaching consequences. It means that s 6 places an obstacle or obstruction to access to the Courts of Law. The section offends the principle of separation of powers by enabling the Government to exercise a judicial function of deciding upon its civil liability or the extent of such liability and hence to I

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KISANGA JA

A decide whether or not it should be sued at all. It enables the Government to be the judge in its own cause. It also seeks to limit Government liability at the expense of the rights of the individual. It offends against the principle which requires the Government to be responsible and accountable to its people. It goes against the principle of openness or transparency.

B Referring to article 30(2)(b) of the Constitution which permits derogation from human rights in certain circumstances, learned Counsel was of the view that s 6 is not saved because it is too general in its application.

C Replying to these submissions Mrs Sumari supported the decision of the High Court that s 6 was not unconstitutional. If we understood her correctly, the thrust of her argument was that although s 6 violates arts 13(3) and 30(3) of the Constitution, that by itself did not make the said section unconstitutional because the complainant of the violation has remedies open to him, such as orders D of mandamus and certiorari. In other words, if the Government withheld the consent, the appellants could always seek remedy for this by asking for an order of mandamus or certiorari compelling the Government to give consent or not to withhold consent.

E With due respect to the learned State Attorney, this amounts to evading the issue. It does not really grapple with and answer the question before us. The argument merely echoes the provisions of article 13(3) of the Constitution. That article says that on aggrieved person may seek redress in the High Court, and that this is without prejudice to any other remedy which may be available to him. F This means that the complainant of a violation of a basic human right is free to seek redress under article 30(3) although he could equally well have sought relief by way of mandamus or certiorari. Therefore if the appellants in this case chose to seek remedy, as they did, under article 30(3) they G were exercising their constitutional right as to which procedure to follow in seeking redress. There can be no justification whatsoever for saying that because s 6 presents an obstacle, the complainant of a violation of this basic human right should be restricted to other forms of remedy. A complainant H should be free to choose the best method legally open to him to prosecute his cause.

This is so under article 30(3) of the Constitution. Section 6 which denies this constitutional right cannot be said to be valid merely because the applicants could have remedy elsewhere; that would amount to going around the problem instead of striking at it directly. Our firm view is that the I offending section must be held and tested directly against the Constitution itself.

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KISANGA JA

Mrs Sumari also claimed that s 6 was justified on grounds of public interests. By this we understood A her to say that the section was saved by article 30(2) of the Constitution which permits derogation from basic human rights in certain circumstances. She contended that s 6 was necessary because it enabled the Government to regulate and control the suits which are brought against it. She was of B the decided view that if s 6 were to be removed, that would open flood gates of frivolous and vexatious litigation which would embarrass the Government and take up much of its time that could be better spent on matters connected with the development and welfare of the members of the society generally. In this regard the learned State Attorney urged that the Government and the C individual are not, and cannot be, equal because the Government has the responsibility of looking after the wider interests of the society at large.

On the material before us we have no difficulty in holding that s 6 violates the basic human right of D unimpeded access to the Court to have one's grievances heard and determined there. That right is guaranteed under arts 13(3) and 30(3) of the country's Constitution reproduced earlier in this judgment. Indeed the Republic's view was that the violation did not invalidate s 6 (the requirement of consent to sue) because where such consent was withheld, the victim was not without remedy, he E could apply for orders of mandamus or certiorari. However, we have rejected that argument for the reasons given earlier in this judgment.

The more difficult question is whether s 6 is saved by arts 30 or 31 of the Constitution which permit F derogation from basic human rights in certain circumstances. Article 31 which relates to measures taken during the period of emergency is obviously inapplicable here. And as far as article 30 is concerned, only sub-art (2) is relevant; it provides that: G

`30(2) It is hereby declared that no provision contained in this part of this Constitution, which stipulates the basic human rights, freedoms and duties, shall be construed as invalidating any existing law on prohibiting the enactment of any law or the doing of any lawful act under such law, making provision for - H

(a) ensuring that the rights and freedoms of others or the public interest are not prejudiced by the misuse of the individual rights and freedoms;

(b) ensuring the interests of defence, public safety, public order, public morality, public health, rural and urban development planning, the development planning, the development and utili- I

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KISANGA JA

A zation of mineral resources or the development of utilization of any other property in such manner as to promote the public benefits;

(c) ensuring the execution of the judgment or order of a Court given or made in any civil or criminal proceedings.

(d) the protection of the reputation, rights and freedoms of others or the private lives of persons involved in any Court proceedings, prohibiting the disclosure of confidential information, or the safeguarding of the dignity, B authority and independence of the courts;

(e) imposing restrictions, supervision and control over the establishment, management and operations of societies and private companies in the country; or

C (f) enabling any other thing to be done which promotes, enhances or protect the national interest generally.'

This Court had occasion to deal with a similar situation in the case of The Director of Public D Prosecutions v Daudi Pete (1) where it considered the validity of s 148(5)(e) of the Criminal Procedure Act denied bail to the accused in a criminal case in certain circumstances. In that case it was recognised that because of the co-existence between the basic rights of the individual and the collective rights of the society, it is common nowadays to find in practically every society limitations E to the basic rights of the individual. So that the real concern today is how the legal system harmonizes the two sets of rights. In trying to achieve this harmony, the view has been that in considering any act which restricts fundamental rights of the individual, such as the right of free access to the Court of law in this case, the Court has to take into account and strike a balance F between the interests of the individual and those of the society of which the individual is a component.

Thus consistent with that approach, the Court in Pete's case laid down that a law which seeks to G limit or derogate from the basic right of the individual on grounds of public interest will have special requirements; first, such a law must be lawful in the sense that it is not arbitrary. It should make adequate safeguards against arbitrary decisions, and provide effective controls against abuse by those in authority when using the law. Secondly, the limitation imposed by such law must not be H more than is reasonably necessary to achieve the legitimate object. This is what is also known as the principal of proportionality. The principle requires that such law must not be drafted too widely so as to met everyone including even the untargeted members of the society. If the law which infringes a basic right does not meet both requirements, such law is not saved by article 30(2) of the I Constitution, it is null and void. And any law that seeks

to limit fundamental rights of the individual must be construed strictly to make sure that it conforms A with these requirements, otherwise the guaranteed rights under the Constitution may easily be rendered meaningless by the use of the derogative or clawback clauses of that very same Constitution.

We shall now apply the two tests to s 6 to see if it is saved by article 30(2) of the Constitution. B Section 6 provides that:

`6. Notwithstanding any other provisions of this Act, no civil proceedings may be instituted against the Government without the previous consent in writing of the Minister.' C

The section carries a proviso which is not relevant to the facts of the present case.

It is most apparent that the law is arbitrary. It does not provide for any procedure for the exercise of the Minister's power to refuse to give consent to sue the Government. For instance, it does not D provide any time limit within which the Minister is to give his decision, which means that consent may be withheld for an unduly long time. The section makes no provisions for any safeguards against abuse of the powers conferred by it. There are no checks or controls whatsoever in the exercise of E that power, and the decision depends on the Minister's whims. And, to make it worse, there is no provision for appeal against the refusal by the Minister to give consent. Such law is certainly capable of being used wrongly to the detriment of the individual. F

Turning now to the requirement that the law must not be drafted too widely, it is obvious once again that s 6 does not pass that test either. The section applies to all and sundry including even those against whom it was never intended. If, as contended by Mrs Sumari, the object is to exclude or discourage the bringing of frivolous and vexations litigation against the Government, it is not shown G how that object is achieved without also limiting the right of persons who have genuine and legitimate claims against the Government.

Even if the limitation imposed by s 6 could be selective, the pertinent question to ask is whether there was really a compelling need for such limitation. In other words, in what way is the limitation justified H in public interest so as to bring it within the purview of article 30(2) of the Constitution? As noted before, Mrs Sumari's contention was that the lifting of the limitation will encourage vexatious suits against the Government such as to embarrass the Government and to take up much of its valu- I

A able time which could be better spent elsewhere. But, apparently anticipating Mrs Sumari, Mr Mughwai in his address earlier on, had argued that there was no such limitation imposed in relation to suits against local governments where the only requirement is a month's notice to sue, and yet the Courts have not been flooded with suits against local governments. When we asked Mrs Sumari, to B respond to that argument she was still at ease to do so.

On this same point Mr Mughwai had submitted that the law in Zanzibar did not impose such limitation, and yet it is not shown or claimed that the Courts in Zamzibar have flooded with frivolous C and vexatious litigation against the Government. In another dimension the learned Counsel charged that in this context s 6 was discriminatory and hence unconstitutional. He referred us to the decision of the High Court (Mwalusanya J) in the case of Peter Ng'omango v Gerson M K Mwangwa and Attorney-General (2) in which this same issue of Ministerial fiat or consent had been raised. There D the learned Judge cited three cases of the Zanzibar High Court in which no consent, but only a month's notice, was required to sue the Union Government. The three cases are: Himidi Mbayo v The Brigade Commander (3); Shabani Khamis v Samson Goa and Another (4) and Khalfan Aboid E Hamad v The Director of Civil Aviation (5). Mwalusanya J took restriction based on which Court, in the United Republic, one goes to seek remedy against the Government of the same United Republic. We entirely agree with the learned Judge that this is violative of arts 13(1) and (2) of the Constitution which provide that:

F `13 (1) All persons are equal before the law and are entitled without any discrimination, to equal opportunity before and protection of the law.

G (2) Subject to this Constitution, no legislative authority in the United Republic shall make any provision in any law that is discriminatory either of itself or in its effect.'

On a similar reasoning we reject Mrs Sumari's submission that because the Government is H responsible for the wider interests of the society, then it should not be placed on an equal footing with an ordinary person. We can find no justification for the distinction. We think that the equality before the law envisaged in article 13(1) above embraces not only ordinary persons but also the Government and its officials; all these should be subjected to the same legal rules.

I While advancing the argument of a compelling need for limita-

tion, Mrs Sumari again claimed that the requirement of consent was necessary in order to give A Government the opportunity during which to study the proposed claims and, where warranted, to consider settlement out of Court. This, she said, spares the Government of the embarrassment of appearing in Court and saves its valuable time to serve the wider public. We could find no substance B in this argument. The Government can achieve all this within the normal procedures of bringing civil suits. Ordinarily before a person decides to sue the Government, there must be some prior communication between the person intending to sue the Government and the Government in which C the former will have indicated sufficiently the nature and grounds of his claim. Thus if the Government so wishes, it can assess the claim and, where warranted, consider settlement out of Court during such pre-suit communication. The requirement of consent to sue is really not necessary for the purpose of affording the Government time to assess the claim and consider settlement out of Court. On the other hand we agree with the learned Judge in Ng'omango's case D above that such restriction militates against the principles of good governance which call for accountability and openness or transparency on the part of Governments.

Therefore, unlike the learned Judge from whom this appeal arises, we find that s 6 of the E Government Proceedings Act 1967 as amended by s 6 of Act 40 of 1974 is unconstitutional for the reasons we have amply demonstrated above. The Republic has totally failed to show that the said section is saved by the provisions of the Constitution which allow for derogation from basic human F rights. In the circumstances we have no alternative but to hold, in terms of article 64(5) of the Constitution of the United Republic of Tanzania that s 6 of the Government Proceedings Act 1967 as amended by Act 40 of 1974 is void. It is accordingly struck down for being unconstitutional. G

The appeal is allowed with costs, and the preliminary objection having failed, the suit is to proceed in accordance with the law.

A

[zRPz]SALUM MHANDO v REPUBLIC 1993 TLR 170 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Omar JJA, Mnzavas JJA and Mfalila JJA

B CRIMINAL APPEAL NO. 15 OF 1993
28 July, 1993
C (From the judgment of the High Court of Tanzania at Dar es Salaam, Bahati, J.)
Flynote
Appellate Jurisdiction Act - Second appeal - Whether it is proper for a second Appellate Court to evaluate the evidence afresh and come to its conclusions in matters of fact.
Evidence - Evaluation of - When a second Appellate Court may evaluate the evidence afresh and make its own D findings of fact.
-Headnote
The appellant was convicted of two counts of robbery with violence. The Trial Court sentenced him to fifteen years imprisonment on each count. On appeal by the appellant to the High Court the appeal E was dismissed and the sentence enhanced to thirty years imprisonment on each count. The sentences were to run concurrently. Aggrieved, the appellant further appealed to the Court of Appeal of Tanzania complaining that there was no evidence of his identification as a member of the gang of robbers. The Court of Appeal observed that the concurrent findings of fact made by the two courts below were not based on a correct appreciation of the evidence.
F Held: (i) If as in this case both courts completely misapprehend the substance, nature and quality of the evidence, resulting in an unfair conviction, this court must in the interests of justice intervene;
(ii) Where there are misdirections and non-directions on the evidence, a court of second G appeal is entitled to look at the relevant evidence and make its own findings of fact;
(iii) The identification of the appellant was not put outside the pail of doubt to make his conviction safe.
Case Information
Appeal allowed.
H Case referred to:
1. DPP v. Jaffari Mfaume Kawawa [1981] TLR 149.
[zJDz]Judgment
Mfalila, J.A., delivered the following considered judgment of the court:
I The appellant Salum Mhand was convicted of two counts of rob-
1993 TLR p171
MFALILA JA
bery with violence contrary to s 285 and s 286 of the Penal Code in Criminal Case No 1589/89 at A Kivukoni District Court in which he was jointly charged with two other persons. Upon his conviction, the appellant who was the first accused at the trial, was sentenced to fifteen years imprisonment on each count but the sentences were ordered to run concurrently. Against this conviction and sentence B the appellant unsuccessfully appealed to the High Court. The High

Court (Bahati J) held that the appellant had been sufficiently identified by the complainants, the victims of the robbery but that since the appellant and his associates were armed at the time of committing the offence, they were liable to be sentenced to imprisonment for not less than thirty years. Accordingly the learned Judge set C aside the sentence of fifteen years on each count and substituted a sentence of thirty years imprisonment. We assume that the learned Judge passed the sentence of thirty years imprisonment on each count and that the sentences were to run concurrently. But at the same time we think the D judge should have invoked the court's revisional jurisdiction to rectify the sentences in respect of the third accused. From this decision, the appellant further appealed to this Court arguing at the hearing that he was not properly identified as being part of the gang which broke into the shops of the E complainants, and in his memorandum of appeal, he complained that as a juvenile he was exempted from the rigours of the Minimum Sentence Act and that therefore he should not have been sentenced to the minimum sentence prescribed by the Minimum Sentences Act.

Before we deal with the appeal on merits, we wish to draw the attention of the Registrar of the High F Court to the unsatisfactory way in which some criminal records of appeal are being prepared. We would like to ask him to certify to us only truly correct records. The act of certifying as correct a record of appeal is not an automatic function. In the present case, the record contained a wrong G charge sheet which was withdrawn. The correct charge sheet with additional accused persons was not made part of the record, hence we had to resort to the original record to see whether the charges referred to in the evidence were the same as those on the new charge sheet and who were the H accused and their numbering. In future we may not take kindly to registrars who certify as correct incorrect records.

The main question before us as it was in the Trial Court and in the High Court was the identification of the appellant. The appellant contends that he was not a member of the gang which raided the two I shops on 27 September 1989. At the trial two witnesses gave

A evidence in support of the charge in Count 1. These are the complainant Sifuni Fadhili (PW1) and another occupant of the house Mikundiwe Zakaya (PW2). What was the substance and effect of the evidence of these two witnesses in support of the charge in Count 1. PW1 related how a group of B about twenty people broke into his shop and attacked the occupants with an assortment of weapons including a panga and iron bar. The witness was assaulted with a panga and another occupant with an iron bar before the assailants made away with a large quantity of articles from the shop. The C witness described what each of the three accused persons did and the articles he took with him. With regard to the appellant, the witness said that he knew him because he always went to his shop. All this is very well, but nowhere does this witness explain how he identified the appellant among the gang of twenty people in what could only have been a room without any light. The raid took place D between 1 am and 2 am. It was extremely important for this witness to explain how he identified the appellant in these circumstances. The other witness PW2 gave similar evidence describing what weapon each accused carried and whom he attacked. But like PW1 he did not explain how he identified the

appellant in this darkness. This is how he explained the way he identified the accused. E He said:

`I identify both the accused persons were in the scene of a crime.' (sic)

F We think this hardly says anything regarding the identification of the appellant although later he states that he knew the appellant before the incident. When cross-examined by the appellant, the witness simply replied that he identified him because he knew him before. The question remains, how did he do this identification in darkness. Quite clearly then the charge in Count 1 was not proved G as the identification of the appellant to have been a member of the twenty strong gang was not established beyond reasonable doubt.

With regard to the charge in Count 2, the relevant witness was the complainant Tito Mbugi (PW4), H and another occupant in the room Mohamed Abdallah (PW6). PW4 described in his evidence how on 27 September 1989 at 1 am the shop was raided by a group of people wielding iron bars, axes and pangas. On entering the room, they shone their torches and threw a stone at him. He added that the gang was big and he could not identify the number. They left after robbing him of various shop I goods and cash. They then went to a neighbour's shop. He concluded his evidence by saying

that that night he identified all the accused. The same question as in Count 1 can be asked, namely A how did he manage to identify the accused that night. The witness provided the answer, he said:

`After breaking the door, they lighted the torches, they threw stone on me, and got in the room and lighted the light.' B

So according to this witness, the bandits put on the light when they entered the room although they had torches and actually had them on. Is this a reasonable scenario that thieves could deliberately expose themselves to clear identification - by putting on the light in the room. We have strong C reservations on the truthfulness of this statement. These reservations are strengthened by the evidence of the other witness PW6 who stated:

`It was 2 am. They pass through at the backyard they just pushed the door and was down, when the bandit arrived D we waked up stated that nobody should be out "Sisi tumefuata kazi moia tu stakayefika aakiona". At the backyard there is light but succeed to make light off - they broke the torches light the whole house was dark. They broke the shop and don't know the property which had been taken.'

Although the passage could be improved grammatically, the general meaning is clear that the E bandits put off the light and plunged the whole house in darkness. We think this version makes sense, that the bandits armed with torches, plunged the house in darkness to make their operations easier by using their torches while at the same time making their identification difficult. In the light of this evidence, we think the learned Judge on first appeal was unduly optimistic when he stated: F

`The witnesses were quite positive about the identity of the appellant. Despite any contradictions there may be in their evidence, the evidence on the identification is very clear.

They knew the appellant before the day in question. G Although there was only torch light in the shop, it was in my view, enough to enable witnesses to identify the appellant who they knew very well.'

Like us the learned Judge also seems to have disbelieved or doubted PW4's assertion that the H bandits put on the light when they entered the building, hence his finding that there was only torch light in the room. But as the learned Judge would most certainly appreciate, torch light in a robbery at night, does not help the victim to identify the attackers, on the contrary it prevents him from I

A identifying them, while making it easier for the attackers to view the surroundings. It is quite obvious then that the appellant was arrested on suspicion because the complainant knew him to be virtually a `bhang' smoking vagabond.

B As it will be noticed, we have taken the unusual step in this appeal of interfering with concurrent findings of fact made by two courts below. On a second appeal to this Court, we are only supposed to deal with questions of law. But this approach rests on the premise that the findings of fact are based on a correct appreciation of the evidence. If as in this case both courts completely misapprehend the substance, nature and quality of the evidence, resulting in an unfair conviction, this C Court must in the interests of justice intervene. In the High Court the learned Judge approached the case globally forgetting that the appellant was charged with two counts which had to be considered separately. The consequences of this approach was that the learned Judge failed to analyse the D evidence touching on each count, this led him to make general statement which cannot be supported by the evidence led in support of each count. In a case in which a similar problem arose, DPP v Jaffari Mfaume Kawawa (1) this Court held as follows at 153:

E `The next important point for consideration and decision in this case is whether it is proper for this Court to evaluate the evidence afresh and come to its own conclusions in matters of fact. This is a second appeal brought under the provisions of s 5(7) of the Appellate Jurisdiction Act 1979. The appeal therefore lies to this Court only on a point or F points of law. Obviously this position applies only where there are no misdirections or non-directions on the evidence, a court of second appeal is entitled to look at the relevant evidence and make its own findings of fact.'

G We are therefore satisfied that the identification of the appellant was not put outside the pail of doubt to make his conviction safe. Accordingly we allow the appeal, quash the convictions on both counts and order that the appellant Salum Mhando be released from prison immediately unless he is H lawfully held on some other cause.

[zRPz]SAIDI KIBWANA AND GENERAL TYRE E.A. LTD v ROSE JUMBE 1993 TLR 175 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

(as administratrix of the Estate of Jumanne Jumbe)
CIVIL APPEAL NO. 6 OF 1993 B
30 July, 1993
(From the judgment and decree of the High Court of Tanzania at Arusha, Munuo, J.) C
Flynote
Civil Practice and Procedure - Interest on general damages - Trial Judge awards interest on the principal sum at 5% per month from the date of filing the suit to the date of full settlement - Whether correct to award interest on D general damages from the date of filing the suit - Interest - Award of interest on general damages - Award of interest at 5% per month - Whether too high and out of proportion.
Civil Practice and Procedure - Abatement of suits - Actions in respect of torts - legal provisions saving certain E causes of action based on tort from abating on the death of either party.
-Headnote
The husband of the respondent filed a suit against the appellants claiming damages due to negligent F driving by the first appellant leading to an accident which caused serious injuries to the husband. The suit took inordinately long before it was finally determined by the High Court. The husband died while the suit was still pending. The widow, the respondent, applied for and was granted letters of administration after which she applied to be brought on the record as the legal representative of the deceased plaintiff to continue the suit. The application was granted and the respondent was brought G on the record and she continued to prosecute the suit. The learned Trial Judge in the end found the appellants (defendants) guilty of negligence and awarded the respondent (plaintiff) Shs 600,000/= as general damages. In addition the Judge ordered the appellants to pay the respondent interest at the rate of 5% per month from the date of filing the suit to the date of final settlement. The appellants H appealed to the Court of Appeal challenging the manner the Judge awarded interest. The Court of Appeal considered the question of award of interest, and also digressed and considered a number of other issues including abatement of suits based on tort.
Held: (i) Interest on general damages is only due after the delivery of judgment because then the principal amount due is known; I
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A (ii) The rate of interest to be awarded during the period after the judgment is delivered is governed by the provisions of Order 20 Rule 21 of the Civil Procedure Code which is limited between the minimum of seven per cent per annum and the maximum of twelve per cent per annum;

(iii) The Trial Judge was wrong to grant interest on general damages from the date of filing the B suit;

(iv) The Trial Judge was wrong to award interest at the rate of 5% per month beyond the date of delivery of judgment; such rate in any case was too high and out of proportion;

(v) Obiter: the general rule is that all rights of action and all demands existing in favour of or C against a person at the time of his death survive to or against his representatives, except those rights which are tied up with the individuality of the deceased which are caught up in the maxim actio personalis moritur cum persona, i.e., a personal right of action dies with the person;

(iv) Obiter: as a general rule the maxim actio personalis moritur cum persona applies to actions D in respect of torts so that on the death of either party to such action the right to sue will be extinguished;

(vii) Obiter: the provisions of section 9 of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance, Cap. 360, save causes of action based on tort from abating on the death of either party unless they are for defamation, seduction or inducing spouses to E separate;

(viii) The right to sue in this suit survived the death of the plaintiff and the legal representative was properly brought on the record.

Case Information

Appeal allowed.

F Cases referred to:

1. Scott v. London and St. Katherine Docks Co. [1865] 3 H & C 596.
2. Barkway v. South Wales Transport Co. Ltd. [1950] 1 All ER 392.
3. Admiralty Commissioners v. SS Susquehanna [1926] AC 655.
4. Mohamed s/o Mohamed v. Athman Shamte [1960] EA 1062.

G 5. J.S. Joban Putra v. G.M. Jaffer, High Court Civil Revision No. 2/60 (unreported).

6. Hooda v. G.M. Gulamali, High Court Civil Revision No. 4/60 (unreported).
7. Prem Lata v. Peter Musa Mbuju [1965] EA 592.
8. National Bank of Commerce v. Parma Shoe Company [1988] TLR 224.

H Makange, for the respondent.

Maro, for the appellants.

[zJDz]Judgment

Mfalila, J.A., delivered the following considered judgment of the court:

I The respondent in this appeal is shown as Rose Jumbe in her capa-

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city as administrator of the Estate of one Jumanne Jumbe. A brief explanation is therefore called for. A Jumanne Y Jumbe was the husband of Rose Jumbe and at all material times he was employed as Export Officer by the second appellant, General Tyre East Africa Ltd headquartered at Arusha. According to the claim, on or about 21 October 1978, the said Jumanne Jumbe while in the course of B his employment with the second appellant, was travelling in the second appellant's motor vehicle driven by the first appellant, when the said motor vehicle was involved in an accident and caused serious injuries to the said Jumanne Jumbe. After his recovery, Jumanne Jumbe filed a claim in tort C against the second appellant as employer and the first appellant as driver of the said motor vehicle and employee of the second appellant. He

claimed general damages amounting to Shs 600,000/= against the first appellant for his negligent driving and against the second appellant as being vicariously liable for the negligence of the first appellant, its employee. The suit took inordinately long D before it was finally determined by the High Court, hence unfortunately Jumanne Jumbe the plaintiff in Arusha High Court Civil Case No 103 of 1983 died in 1988 while it was still pending. At this stage, the widow Rose Jumbe applied for and was granted letters of administration to administer the estate E of her late husband. After getting letters of administration, she applied to be brought on the record as the legal representative of the deceased plaintiff to continue the suit. The application was granted on 13 December 1989, and it was ordered that she be brought on the record and henceforth the suit F was prosecuted by her in that capacity and it is in that capacity that she appeared before us as the respondent. Having traced the history of how Rose Jumbe came to be on the record of this appeal, the next question is whether her being brought on record was proper in law. The learned Judge who granted the application and everyone else appear to have assumed the automatic nature of the G position.

The actual position is neither automatic nor simple. The question is whether on the death of the original plaintiff Jumanne Jumbe, the suit abated. The governing legal provision is Order 22 Rule 1 of the Civil Procedure Code 1966 which provides as follows: H

`The death of a plaintiff or defendant shall not cause the suit to abate if the right to sue survives.' (The emphasis is ours.)

When therefore Mrs Rose Jumbe applied to be brought on the record to continue the suit as personal representative of the de- I

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A ceased, the Court should have asked itself whether the plaintiff's right to sue the appellants survived his death. In this connection it was incumbent upon the respondent who was claiming that the deceased plaintiff's right to sue had survived to her, to show either that she was entitled to assert the right to the same relief claimed by the deceased plaintiff or that there are some statutory B provisions entitling her to do so.

The general rule is that all rights of action and all demands existing in favour of or against a person at the time of his death survive to and against his representatives, except those rights which are tied up C with the individuality of the deceased, these are caught up in the maxim - actio personalis moritur cum persona, ie a personal right of action dies with the person. As a general rule this maxim applies to actions in respect of torts so that on the death of either party to such action the right to sue will be D extinguished. Hence in the present case since the claim by the deceased plaintiff was based on tort, this right to sue did not survive his death. In the circumstances, the respondent's application to be brought on record as the deceased's legal representative, should not have been granted in the E automatic manner in which it was. The only salvation left to the respondent was whether there are statutory provisions to override the common law position. In the Indian Civil Procedure Code, the position is saved by the provisions in the Indian Succession Act 1925 and the Probate and F Administration Act. However our own Probate and Administration Ordinance cap 445 would not be of any

assistance to the respondent because the nearest provision in s 40 does not specifically provide for the survival of causes of action. We have laboured to save this suit because given the gross mishandling that it has suffered and the unnecessary delays to which it was subjected mostly due to G the plaintiff's own counsel, we thought it would be most unfortunate and tragic for the unfortunate widow if the suit were to fail on the basis that the right to sue did not survive the death of the plaintiff. The Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance cap 360 came readily to H our assistance. Section 9 of this Ordinance provides as follows:

`9(1) Subject to the provisions of this section, on the death of any person after the commencement of this Ordinance, all causes of action subsisting against or vested in him shall survive against, or as the case may be for the benefit I of his estate:

Provided that this subsection shall not apply to causes of action for defamation or seduction or for inducing one A spouse to leave or remain apart from the other or to claims for damages on the ground of adultery.

(2) not applicable

(3) no proceedings shall be maintainable in respect of a cause of action in tort which by virtue of this section B have survived against the estate of a deceased person unless either -

(a) proceedings against him in respect of that cause of action were pending at the date of his death; or

(b) proceedings are taken in respect therefor not later than six months after his executor or administrator took out representation.' C

This section specifically saves causes of action based on tort from abating on the death of either party unless they are for defamation, seduction or inducing spouses to separate, which this one is D not any of these. Therefore the right to sue in this suit survived the death of the plaintiff and the legal representative was properly brought on the record.

Having firmly established the respondent's legal position, we now turn to the suit itself. In the formal amended plaint which was about the fourth version, the plaintiff alleged that on or about 21 October E 1978, while in the course of their employment, the first defendant and the plaintiff were travelling in the second defendant's motor vehicle, the first defendant being the driver, attempted to overtake motor vehicle registration No TZ 34121, Isuzu and in the process crashed into the Isuzu whereby the F plaintiff sustained injuries leading to permanent disabilities. The plaintiff went on to assert that this accident was a result of the negligence of the first defendant as employee and/or authorised driver of the second defendant. He particularised the first defendant's negligence as follows: G

(a) attempting to overtake the Isuzu vehicle while it was not possible and in the process crashed into the same;

(b) while overtaking, the first defendant went completely off course as the other vehicle's driver tried to swerve to the right; H

(c) that due to the above mentioned negligence the plaintiff suffered injuries and permanent disabilities.

The injuries suffered by the plaintiff were also particularised as follows: I

A (a) Injuries to the spine from the mid-thoracic spine resulting in complete paraplegia.

(b) Multiple bodily bruises.

(c) Nervous shock.

B By reasons thereof the plaintiff claimed general damages amounting to Shs 600,000/=, interest on the decretal amount at 9% per month from the date of suit till date of full and final payment and costs of the suit.

C At the conclusion of the trial in the High Court, the learned Judge found on the evidence before her that at the time of the alleged accident, the plaintiff was in the course of his employment with the second defendant, that the accident was caused by the negligence of the first defendant and that therefore the plaintiff was entitled to the damages as claimed in the plaint. Accordingly, she awarded D the plaintiff the sum of Shs 600,000/= as general damages, but reduced the interest claimed from 9% to 5% per month from the date of filing the suit to the date of full settlement and costs of the suit. The appellants then lodged this appeal but only against the rate of interest awarded. They were apparently satisfied with the Judge finding on their liability and have in fact already paid to the respondent the principal sum adjudged. In their memorandum of appeal which contained two E grounds, the appellants complained:

`1. That the learned Trial Judge erred in law in awarding interest on the decretal amount at the rate of 5% per F month beyond the date of delivery of judgment.

(b) That the learned Trial Judge erred in law and fact in awarding interest on the principal sum at the rate of 5% per month, which rate is clearly excessive and out of proportion.'

G As indicated, this appeal is not concerned with the liability of the appellants in negligence because there was no appeal against the Judge's finding on this point. In this appeal we are only concerned with the rate of interest which was awarded. However, having gone through the record of trial and noted some shortcomings, we have decided to deal with the question of the absence or presence of H negligence on the part of the first appellant and the second applicant's vicarious liability so that our observations can act as a guide in future cases. It was for the same reason that we dealt with the point whether the plaintiff's right to sue survived his death.

I In our view, the most important question was whether negligence

on the part of the first appellant was established. After establishing negligence on the part of the first A appellant, the respondent had to show that at the time of the accident, the first appellant was acting in the course of his employment as employee of the second appellant. What was the evidence in this regard? In her evidence in chief the respondent said nothing regarding the first appellant's alleged B negligence, this is not surprising because she admitted that she does not

know much about the accident as she did not witness it. But in cross-examination, she acted that although she was not present when the accident happened, the deceased had told her that the accident occurred when the first appellant was overtaking an Isuzu truck TZ 34121 in the course of which the first appellant's C vehicle hit the Isuzu truck. The next question is what were the circumstances in which the first appellant's vehicle hit the lorry? Two explanations were offered; one by the first appellant and the other by the respondent. Of course the respondent not having been at the scene could only hazard a guess. She said that since the first appellant knocked the lorry as he was overtaking it causing his D own vehicle to overturn, this circumstance, she said, appears to suggest that the overtaking was done recklessly without due attention. And, in her written submissions at the end of the trial, the respondent submitted that the first appellant's negligence was to be found in the speed at which he E was driving. In her submission, the first appellant's failure to stop or otherwise manage the vehicle at the time of the accident, is evidence of high speed and therefore reckless driving.

On the other hand the first appellant explained that the accident happened when he started F overtaking an Isuzu lorry after indicating to the lorry driver his intention to do so. As he came abreast with the lorry, it swerved onto his path knocking his vehicle and causing it to overturn. He added that G the lorry swerved to his side because its driver was trying to avoid a cyclist. His tyre also burst in the process. In the circumstances the appellants submitted that there was no thread of evidence adduced by the respondent before the Court to prove that the accident which resulted in the alleged injuries was due to the negligence of the first appellant. They added that in the Criminal Court the first H appellant was acquitted of the charge of reckless driving.

In reply, the respondent stated that since her claim was not founded on the negligence by the first appellant but rather on a claim based on injuries sustained in the course of employment, the first I appellant's negligence was immaterial. The Trial Judge did not

A comment on this strange submission, but on our part we are satisfied that it was misconceived both in fact and law. It was misconceived in fact because the respondent specifically pleaded the first appellant's negligence in para 6 and particularised the alleged negligence in the same paragraph in B three sub-paragraphs. It was misconceived in law because the vicarious liability of an employer does not depend on his relationship with the victim of the accident, but with the tort-feaser. It was therefore extremely important and material to prove the first appellant's negligence.

C In her judgment the Trial Judge had the following to say on the appellant's liability in negligence:

`With regard to issue 2 (ie whether the accident was caused by the negligence of the first appellant) there is the evidence of the first defendant who was driving the accident vehicle at the material time. He stated that he flashed to D an Isuzu lorry ahead of him that he was overtaking the said lorry but the lorry driver would not give way thereby causing some tyres of the Range Rover ARG 134 to leave the tarmac road resulting in the said Range Rover

overturning. It is the considered view of the Court that if the lorry driver would not give way to allow the first defendant to pass safely, the first defendant was duty bound to slow down and drive behind the Isuzu lorry until it was safe to E overtake it. The first defendant would have done so if he were driving with due care and attention and not at an excessive speed. The circumstance of the Range Rover the first defendant was driving getting off the tarmac and overturning indicate that the first defendant was driving at such excessive speed or with such recklessness that he F failed to control the said Range Rover thereby causing it to overturn. Even if the first defendant were not negligent in his driving, the plaintiff would still be entitled to damages for personal injuries sustained in the material accident on the concept of res ipsa loquitor (sic) and furthermore because the plaintiff was within the scope of duties G assigned to him by his employer the General Tyre (EA) Limited when the motor accident occurred.'

From the above passage of the Trial Court judgment, we have been able to extract four reasons on H which the learned Judge based her finding that the first defendant was negligent thereby entitling the plaintiff to damages. These are:

(1) that the first defendant was driving at an excessive and reckless speed.

I (2) that he overtook a vehicle when it was not safe to do so as the vehicle in front of him would not give him way.

(3) on the doctrine of res ipsa loquitur. A

(4) that the plaintiff was at the time of the accident acting within the scope of his employment.

Each of these reasons prompted some question in our minds. With regard to the first reason, was B there any evidence led to support it? Apart from the fact that there is no evidence led to support the first reason, it was not part of the pleadings, in other words excessive and reckless speed was not among the particularised acts of negligence pleaded in para 6 of the plaint. The Trial Judge should not therefore have imported it. The second reason is well founded because it came from the first C appellant's own mouth. He said, `I had flashed to the Isuzu lorry that I was overtaking but the said lorry driver did not give me way so that the accident occurred. . . .' It is clear from this that the first defendant was forcing his way to overtake the lorry while fully aware that the lorry driver was not ready to give him way as apparently there was a cyclist in front. Although speed was not pleaded in D the particulars of negligence, and this is just one of the numerous weaknesses in the conduct of the respondent's case, the first appellant must have been travelling at a high speed while forcing his way to overtake the lorry. The act of forcing his way to overtake the lorry even without the high speed E constituted negligent driving. Since the accident involving the Range

Rover driven by the first appellant and the Isuzu lorry was thus obviously due to the negligent and careless driving of the first appellant, the question of applying the maxim res ipsa loquitur did not F arise as the Trial Judge indicated as being another reason establishing the first appellant's negligence. We intend therefore to dwell at length on this maxim and clarify its application. The learned Judge stated: `even if the defendant was not negligent in his driving,

the plaintiff would still be entitled to damages for personal injuries sustained in the material accident on the concept of res ipso G loquitor' (sic). This statement was a contradiction in terms arising out of the confusion of the concept in this maxim and how and in what circumstances it should be applied. If there is no negligence, the maxim simply would not arise. The circumstances which give rise to the application of the maxim, constitute prima facie evidence of negligence against the defendant. We think we H cannot better the explanation of this maxim given by Professor Winfield in his book on Torts 13th ed at 125:

`In order to discharge the burden of proof placed upon him, it is usually necessary for the plaintiff to prove specific I acts or omissions

A on the part of the defendant which will qualify as negligent conduct. Sometimes, however the circumstances are such that the Court will be prepared to draw an inference of negligence against the defendant without hearing detailed evidence of what he did or did not do. Thus for example the presence of an unlighted vehicle on the road at B night will, if there is no other lighting, be regarded prima facie evidence of negligence on the part of the driver. It is important to appreciate however that this means no more than that in the absence of an explanation from the defendant, the plaintiff has discharged his burden of proof. The inference of negligence is by no means irresistible and the nature of the evidence required from the defendant in rebuttal will depend in each case on the standard of C care called for in the circumstances.

The position has, however, been complicated and obscured by the use in many cases of the maxim res ipsa loquitur. As Morris LJ has said, the maxim `possesses no magic qualities, nor has it any added virtue, other than D that of brevity, merely because it is expressed in Latin. When used on behalf of a plaintiff it is generally a short way of saying: `I submit that the facts and circumstances which I have proved establish a prima facie case against the defendant.' There are certain happenings that do not normally occur in the absence of negligence, and upon proof of these a court will probably hold that there is a case to answer. In other words the maxim does no more than express E in three words what has just been said.'

From this passage we discern one condition before this maxim can be applied to a particular F situation. That is that the mere fact of the accident having happened should tell its own story and raise the inference of negligence so as to establish a prima facie case against the defendant. The story should be clear and indicate only a prima facie case of negligence against the defendant. This concept is illustrated by the following two cases. In Scott v London and St Katherine Docks Co (1) six bags of sugar fell on the plaintiff whilst lawfully passing a doorway of defendant's warehouse. G Defendants called no evidence and Erle CJ stated:

`There must be sufficient evidence of negligence. But where the thing is shown to be under the management of the H defendant or his servants, and the accident is such as in the ordinary course of things does not happen if those who have the management use proper care, it affords reasonable evidence, in the absence of explanation by the defendants that the accident arose from want of care.'

On this principle, the Chief Justice found that sufficient evidence of negligence existed in the case I before him. From the above passage

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three conditions for the application of the maxim can be extracted. These are: A

(1) That the thing causing the damage be under the control of the defendant(s) or his servant(s).

(2) That the accident must be such as would not in the ordinary course of things have B happened without negligence.

(3) Absence of any explanation, by the defendant, in other words there must be no evidence of the actual cause of the accident. This is because if the facts are sufficiently known the question ceases to be whether they speak for themselves, the only question being whether on the facts as established negligence is to be inferred or not. C

The case going the other way is Barkway v South Wales Transport Co Ltd (2). In this case B was travelling as a passenger in the defendant's omnibus and was killed when it veered across the road D and fell over an embankment. A great deal of evidence was given by the defendants and it was established that the cause of the accident was a defect in one of the tyres which could have been discovered beforehand if the defendants had required their drivers to report occurrences which could result in what was described as `impact fractures'. The House of Lords held that as the cause of the E accident was known, res ipsa loquitur did not apply, but that on the facts the negligence of the defendants was established.

Like in the Barkway case (2), the cause of the accident in the present case is known ie the first appellant attempting to forcibly overtake a lorry when it was obviously not safe to do so. The maxim F res ipsa loquitur was therefore clearly not applicable.

The fourth and last reason used to establish the second defendant's liability was that the plaintiff was at the time of the accident acting within the scope of his employment. With respect, this also G confused issues. The vicarious liability of an employer in tort as we have already stated, is not governed by the relationship between the employer and the victim of the tort of negligence. Rather his liability is based on his relationship with the tort-feaser who must have at the time of the accident been acting within the scope of his employment. The relationship of the plaintiff to the second H defendant would have been relevant only if he had based his claim on the Workmen's Compensation Ordinance. On the facts of this case, there is no doubt that the first defendant or the present first appellant was at the time of the accident acting within the scope of his employment with the second appellant. In the circumstances the I

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A vicarious liability of the second appellant was thus firmly established.

The other point which we want to deal with again purely for reasons of future guidance is the question of damages which were claimed and awarded in this case. We say for future guidance B because the question is not before us. We have felt compelled to make these observations because we strongly feel that the respondent in this appeal as was her plaintiff husband, did not

get proper advice as regards their claim for damages, and at the end of the trial the Court did not face and C resolve this problem properly to the plaintiff's fullest advantage. In all the four plaints, only general damages amounting to Shs 600,00/= were claimed. We are at a loss to understand why Counsel on behalf of the plaintiff limited himself to this head of claim. We think this was very unfortunate. In an accident of such magnitude which resulted in such serious incapacitating injuries to the plaintiff, the D following reliefs in addition to the general damages should have been specifically claimed.

(a) damages for loss of future earnings

(b) damages for pain and suffering

E (c) damages for loss of expectation of life.

This we think could have done justice to the plaintiff or his estate. But as it turned out only a meagre Shs 600,000/= was claimed as general damages. The Trial Court automatically awarded this figure F acting as if its hands were tied to the figure asked for. The fact of the matter is that the Court was not tied to the figure of Shs 600,000/= which in any case should not have been pleaded. A plaintiff should only ask for general damages and leave the quantification to the Court. The Court determines how much damages are due be it in contract or tort, which so far as money can compensate, will G give the injured party reparation for the wrongful act and for all the natural and direct consequences of the wrongful act. As Lord Dunedin stated in the case of Admiralty Commissioners v SS Susquehanna (3):

H `If the damage be general, then it must be averred that such damage has been suffered, but the quantification of such damage is a jury question.' (read Court).

I Hence the fact that in the present case the plaintiff mentioned a specific figure did not take away the function of the Court to de-

termine and quantify the damage suffered. In the circumstances of this case where only one head of A claim was made, the Trial Court would have been perfectly entitled to ignore the figure claimed and award a much higher figure. During the hearing of the appeal, Mr Makange, Counsel for the respondent, invited us to assess afresh the general damages because according to him, this Court B is not tied to the amount claimed or that awarded by the High Court. This Court, he said, can award damages as it thinks fit. We agree with Mr Makange that we are not tied to the amount claimed or that awarded by the High Court, but we have to be moved to exercise this jurisdiction. We cannot do it in the absence of an appeal and since in this case there was no appeal against the C amount of general damages awarded, we cannot take up the matter on our own with a view to interfering or changing what was claimed or awarded.

Having digressed for so long in the hope that our digression will be of assistance in future cases, we D now turn to the appeal before us regarding the rate of interest which was awarded by the Trial Court. As indicated earlier on in this judgment, the Trial Judge awarded interest on the principal sum of 5% per month from the date of filing the suit to the date of full settlement. In their memorandum of E appeal, the appellants stated that the Trial Judge erred in law in awarding interest on the decretal amount at the rate of 5% per month beyond the date of

delivery of judgment and that in any case awarding interest at the rate of 5% per month was clearly excessive and out of proportion. At the hearing of the appeal, Mr Maro, learned Counsel who appeared for the appellants, submitted that the F power of the Trial Court to award interest is provided in s 29 of the Civil Procedure Code and that interest on general damages cannot be awarded from the date of filing the suit but from the date of judgment. Interest from the date of filing the suit is only awarded on special damages. He added that G since general damages are not known until they are assessed by the Court, they are not owed until they are pronounced hence interest on them cannot be backdated. In this case, he submitted, where the award was only for general damages, the Trial Court could only award interest from the date of judgment and this at the Court rate only. H

On the second ground of appeal, Mr Maro submitted that the rate awarded of 5% per month was too high and that in any event the rate applicable after judgment is between 7% and 12% per annum. The rate awarded at 5% per month is equivalent to 60% per annum which is clearly exorbitant. I

In reply Mr Makange defined the rate of interest awarded saying

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A that in awarding interest at this rate, the Trial Judge took into consideration the heavy responsibilities which have fallen on the respondent after the death of her husband and also the devaluation of the shilling. In the circumstances, he said, the interest rate at 5% per month is not B excessive to warrant intervention by this Court. In any case, he added, this was not the first time that a Court has awarded interest at the monthly rate.

As Mr Maro rightly pointed out, the statutory power to award interest on judgment debts is contained C in s 29 and O 20 r 21 of the Civil Procedure Code 1966. Section 29 provides as follows:

`Section 29 - The Chief Justice may make rules prescribing the rate of interest which shall be carried by judgment debts and, without prejudice to the power of the Court to order interest to be paid up to the date of judgment at such rates as it may deem reasonable, every judgment debt shall carry interest at the rate prescribed from the date of the D delivery of the judgment until the same shall be satisfied.'

Order 20 r 21 provides as follows:

`The rate of interest on every judgment debt from the date of delivery of the judgment until satisfaction shall be seven E per centum per annum or such other rate, not exceeding twelve per centum per annum as the parties may expressly agree in writing before or after the delivery of the judgment or as may be adjudged by consent.'

F The rate of interest prescribed under powers conferred on the Chief Justice by s 29 vide GN No 410/64 are the same as those prescribed under O 20 r 21 namely between the minimum of 7% and the maximum of 12% per annum from the date of the delivery of judgment until satisfaction. The rate G of interest to be awarded for the period prior to the delivery of judgment is set at the discretion of the Court. The rate which it considers reasonable. There are thus two divisions of interest under Tanzania Law as opposed to three under s 34 of the Indian

Civil Procedure Code which ceased to apply in Tanzania in 1966. These two divisions correspond to the period for which interest is H awarded. The first period covers the whole of that period up to the delivery of judgment. The second period is the period from the delivery of judgment to final satisfaction. The rate to be awarded for the first period is entirely at the discretion of the Court, whereas the rate to be awarded for the second I period is also at the discretion of the Court but within set limits ie between 7% and 12% per annum. Although for the pur-

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poses of fixing interest rates there are only two periods, the first period can be subdivided in two: A namely the period prior to the institution of the suit and the period between the filing of the suit till judgment. In the present case the learned Trial Judge awarded interest at the uniform rate of 5% per month from the date of filing the suit to the date of full and final payment. The Judge therefore B consolidated two distinct periods, the one before and after judgment. Could the Judge properly do this? This is the basis of the two complaints in the memorandum of appeal. The two periods as we have already indicated are governed by different methods of fixing the rates of interest. One in which C the Court has complete discretion, and the other where the Court's discretion is bound within a limited area. We do not think in the circumstances that the two periods could be consolidated and treated as one for the purpose of fixing interest rates. In Mohamed s/o Mohamed v Athman Shamte (4) the appellant obtained judgment against the respondent for Shs 1,000/= with interest therein D amounting to Shs 1,190/= to the date of filing proceedings and further interest on the principal sum at the rate of 6% per annum from the date of filing proceedings to the date of final payment. The plaintiff was not satisfied with the rate of interest awarded between the date of filing the suit and the date of judgment. He appealed to the High Court in which he complained among other things that the learned E resident magistrate erred in not allowing the rate of interest as agreed between the parties from the date of filing until judgment. At the hearing, Counsel for the appellant submitted that as the rate of interest under the loan agreement was 84% per annum, the appellant should be allowed interest at F this rate also for the period between the date of filing of the suit to the date of judgment the High Court held Mosdell J:

`Quite apart from legislative provisions on the subject, it is clear that this Court has an inherent power to reopen a G harsh and unconscionable bargain between two parties and in particular in relation to the rate of interest agreed to be paid on a loan. . . .

The rate prescribed from the date of delivery of judgment is 6% as laid down in the relevant Rules. But the interest H rate between the date of the filing of the suit and the date of judgment is left to the discretion of the Court. In the instant case the Resident Magistrate reached the conclusion that although a contractual rate of interest might be deemed reasonable by the Court, it was not bound to award such a rate of interest if it considered it harsh and I unconscionable. . . .

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MFALILA JA

A The discretion of the Court is not displaced by an agreement to pay a certain rate of interest. The Court may or may not award the contractual rate of interest between the date of the institution of the suit and judgment in the exercise of its discretion. Whether it does so or not depends upon whether or not such rate is reasonable.'

B Although the Athman Shamte case as well as J S Joban Putra v G M Jaffer (5) and Hooda v G M Gulamali (6) were concerned with contractual rates of interest, unlike the present case where the principal judgment debt is in the nature of general damages in tort, nevertheless they underline the C principle governing the award of rates of interest for different periods and the discretionary nature of the award for the period prior to the delivery of judgment. In the two revision cases, a rate of interest at 21/2% per month was awarded but this as indicted was in contract and for periods in which the D Court had discretion as to what rate to award ie the period before judgment.

The case which is almost on all fours with the present case and therefore directly relevant is Prem E Lata v Peter Musa Mbuju (7) which was an appeal from the High Court of Kenya. In that case the appellant in a suit for damages for personal injuries was awarded Shs 24,000/= as general damages and Shs 1,742/80 as special damages but the Trial Judge refused an application to award interest on F these two sums from the date of filing suit until judgment. The Court held that in personal injuries cases, interest on general damages should not be awarded for the period between the date of filing suit and judgment but interest should normally be awarded on special damages if the amount claimed has been actually expended or incurred at the date of filing suit. The Court (Law JA) stated at 593 (C-H):

G `The award of interest on a decree for the payment of money for the period from the date of the suit to the date of the decree is a matter entirely within the Court's discretion, by s 26 (equivalent to our s 29 supra) of the Civil Procedure Act. Such a discretion must of course be judicially exercised, and where as in this case no reasons are given for the H exercise of a judicial discretion in a particular manner, it will be assumed that the discretion has been correctly exercised, unless the contrary be shown. (Toprani v Patel [1958] EA 346.) In an attempt to satisfy us that the normal practice is to award interest on the amount of a money judgment from the date of filing suit, Counsel for the appellants referred us to Eastern Radio Service v R J Patel 1962 EA 818 and Y F Gulan Hussein v French I Somaliland Shipping Co Ltd 1993 TLR p191

MFALILA JA

[1959] EA 25. In both these cases the successful party was deprived of the use of goods or money by reason of a A wrongful act on the part of the defendant, and in such a case it is clearly right that the party who has been deprived of the use of goods or money to which he is entitled should be compensated for such deprivation by the award of interest. But suits for damages for personal injuries are in a different category. It cannot be said that, at the date of B filing suit, the plaintiff is entitled to any particular amount. This depends on the decision of a number of factors, including liability contributory negligence, and the assessment of damages which may include as in this case, a considerable element in respect of future disability. In these circumstances, we do not consider that the Chief Justice wrongly exercised his discretion in

refusing to award interest from the date of filing suit in respect of the C general damages, as the infant plaintiff cannot have been deprived of the money represented by these damages from any particular date before judgment. Counsel for the respondent does not however, oppose an order for the payment of interest on the special damages awarded to the next friend as these represent out of pocket expenses actually paid or incurred at the date of filing suit. We agree.' D

In the present case where no special damages were pleaded and awarded, the Trial Judge overlooked every principle enunciated in the Prem Lata case quoted above as well the provisions of E O 20 r 21 of the Civil Procedure Code when she awarded interest at the rate of 5% per month from the date of filing the suit to the date of satisfaction of the decree. Since the award was only for general damages, no interest could be awarded for the period prior to the delivery of judgment F because before delivery of the judgment which awarded general damages, the plaintiff was not entitled to any particular amount which could attract interest. Interest on general damages is only due after the delivery of judgment because then the principal amount due is known. The Court has a G discretion to award interest for the period before the delivery of judgment only on special damages actually expended or incurred, but even this at such rate as the Court thinks reasonable. This discretion does not extend to the period after the delivery of judgment. The rate of interest to be awarded during the period after the judgment is delivered is governed by the provisions of O 20 r 21 H of the Civil Procedure Code which is limited between the minimum of seven per centum per annum and the maximum of twelve per centum per annum. The Trial Judge awarded a rate of interest at 60% per annum. Even for the period prior to the delivery of judgment for which the Court has unlimited discretion subject to reasonableness, the award of interest at that rate cannot be any description or yardstick be re- I

1993 TLR p192

MFALILA JA

A garded as reasonable. It is twice the normal bank rate. Even if we were to agree with Mr Makange that in fixing the interest at this rate, the Trial Judge took into account the responsibilities which fell on the respondent upon the death of her husband as well as the devaluation of the shilling, this rate B would still appear unreasonable. But these two considerations have one main objection, that they are irrelevant when considering the rate of interest to be awarded. They could be relevant in assessing the amount of damages and then only if the claim was made vide the provisions of Law Reform (Fatal Accidents Miscellaneous Provisions) Ordinance cap 360. Then, the responsibilities of the C widow or other dependants would feature prominently. But this was a case of the legal representative stepping into the shoes of the plaintiff in a claim for personal injuries. With regard to the devaluation of the shilling, this Court in National Bank of Commerce v Parma Shoe Company (8) approved the D principle. In that case the High Court awarded Shs 50,000/= as compensation for the depreciation in value of the sum claimed ie Shs 34,500/=. The present appeal is however different, it is concerned with the rate of interest to be awarded on the principal sum. This as it has been shown is governed by statute. The depreciation in value of the principal sum is a separate and unrelated issue. E Therefore both the considerations advanced by Mr Makange to support the 5% per month interest rate are irrelevant.

For the reasons we have given, we uphold the appeal against the rate of interest awarded by the Trial Court and say that the Trial Judge was wrong to grant interest on general damages from the date of F filing the suit, that the Trial Judge was wrong to award interest at the rate of 5% per month beyond the date of delivery of judgment and that such rate in any case was too high and out of proportion. We accordingly set aside the interest awarded at 5% per month from the date of filing the suit to full payment. We order instead that the principal sum of Shs 600,000/= awarded as general damages, G shall carry interest at the rate of 12% per annum from the date of judgment to the date of full payment.

With regard to the costs of this appeal, we are aware that ordinarily the costs must follow the event, H but in this case we have taken into account the fact that due to the errors of her advocates in the High Court the respondent has been grossly underpaid, her new responsibilities in the family and the fact that she was saddled with this appeal purely on account of the Trial Court's errors in law. We I think for these reasons that she should not be burdened further with extra costs.

1993 TLR p193

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[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v ABDUL ISMAIL 1993 TLR 193 (CA)

Court Court of Appeal of Tanzania - Mbeya

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

CRIMINAL APPEAL NO. 73 OF 1993 B

12 August, 1993

(From the revision of the High Court of Tanzania at Mbeya, Mchome, J.) C

Flynote

Criminal Law - Threatening violence - Whether threatening violence includes threat to kill - s 89(2)(a) of the Penal Code.

Criminal Practice and Procedure - Criminal Revision - Whether Judge can make a revision after consultations D with the relatives of a convict who had an advocate.

Criminal Practice and Procedure - Criminal Revision - Notification to the DPP - Whether the High Court should hear the parties on revision - S 374 of the Criminal Procedure Act, 1985. E

-Headnote

The respondent was convicted by the District Court, of threatening violence and sentenced to four months imprisonment. Immediately thereafter, his advocate gave notice of appeal and applied for a copy of proceedings and judgment. The same day, relatives of the respondent complained to the Judge about the case. The Judge sat in revision on the following day, which was a Saturday, and F quashed the conviction and set aside the sentence. The Director of Public Prosecutions appealed.

Held: (i) Section 89(2)(a) of the Penal Code includes the ingredient of a threat to kill;

(ii) Where a party has an advocate, a Judge should entertain complaints through Counsel and not through the party's relatives; G

(iii) In terms of s 374 of the Criminal Procedure Act, the judge is not obliged to hear the parties on revision, but the practice in the High Court has been to notify the Director of Public Prosecutions; the need to adhere as far as possible to that practice is emphasized.

Case Information

Appeal allowed. H

No case referred to.

Mrs. Makuru, for the appellant.

[zJDz]Judgment

Kisanga, J.A., read the following considered judgment of the court: I

1993 TLR p194

KISANGA JA

A This is an appeal by the Director of Public Prosecution (DPP) against a revision order of the High Court (Mchome J).

The respondent was convicted by the District Court of threatening violence contrary to s 89(2)(a) of the Penal Code and sentenced to 4 months' imprisonment. Immediately after his conviction and B sentence, Mr Kayange, his advocate, gave notice of appeal and applied for copy of proceedings and judgment, and in response thereto the Court ordered:

C `Proceedings and judgment to be typed and supplied to Mr Kayange, Counsel for accused immediately.'

Sitting in revision on the following day which was a Saturday, the learned Judge quashed the conviction and set aside the sentence.

The learned Judge set out the background to, and the justification for the action he took. He said that on Friday the respondent was being threatened that he would be imprisoned without an option for a fine. Whereupon the Judge advised him to wait for the judgment which was due for delivery that D same Friday, and should the threat materialize then he would appeal or apply for revisions. In the afternoon of that same Friday the respondent's relatives complained to the Judge that the respondent E had in fact been sentenced to four months' imprisonment without an option of a fine. As there would be no Judge at the station for more than a week starting on Sunday, the Judge said he had to call up the file for inspection that Saturday. His inspection revealed gross miscarriage of justice, a situation F which he described as follows:

`The whole exercise in this case shows a travesty of justice and I find that the accused will suffer unnecessarily if this case waits for the normal appeal processes.'

G According to the learned Judge the miscarriage of justice found consisted of the charge being grossly defective resulting in the evidence not disclosing the offence charged. It also consisted of imposing a prison sentence without a fine option on the respondent, an old man aged about sixty H years and a first offender on the pretext that he was wealthy.

The DPP filed four grounds of appeal which were argued before us by Mrs Makuru, learned Senior State Attorney. The respondent appeared and resisted the appeal in person. The first

ground of appeal in effect criticises the learned Judge for acting on non-existent provision or the law when he I quashed the conviction entered by

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KISANGA JA

the District Court. This criticism is wholly justified. The offence of threatening violence, as it currently A stands, is created under s 89(2)(a) of the Penal Code a was amended by Act 14 of 1980. That section provides:

> `Any person who:
>
> with intent to intimidate or annoy any person, threatens to injure, assault, shoot at or kill any person or to burn, B destroy or damage any property . . .'

The information before the District Court charged the respondent with threatening to kill Mr Mbise, State Attorney and the Trial Magistrate in his judgment correctly reproduced the law as set out above C when he was considering whether or not the charge had been proved.

In quashing the conviction, however, the learned Judge, for reasons which are not at all apparent D relied on the version of s 89(2)(a) of the Penal Code which was amended in 1980 and which then did contain as an ingredient the threat to kill. We say the Judge did so for reasons which are not apparent because the amendment which was effected over twelve years ago is now contained in the copies of the Penal Code which are currently in use and which the learned Judge should be using. Not only that. The current version of the law was set out in the very judgment which the learned E Judge was revising, but he did not refer to that version to say why the Magistrate was wrong in applying it and why he (the judge) was justified to apply the one he did. Be that as it may, the net result is, and we so find, that the learned Judge quashed the respondent's conviction on a patently F wrong ground that s 89(2)(a) of the Penal Code under which the respondent was charged did not include the ingredient of a threat to kill.

In the second ground the DPP complains that the learned Judge erred in holding that the particulars G of the offence did not disclose the offence charged. This is already covered by what has been said above. For, had the learned Judge referred to, and applied the current version of s 89(2)(a) of the Penal Code which has as an ingredient the threat to kill, he would have found that the particulars did disclose the offence when they charged the respondent with the threat to kill the State Attorney. H

Ground three criticises the learned Judge for making a finding that Mr Mbise had abdicated his duties as a State Attorney when he advised a certain Mr Mohamed Hussein, a private individual, to look for I an advocate to assist him. This ground would appear to be

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KISANGA JA

A relevant to consideration of the soundness or otherwise of the respondent's conviction. But bearing in mind the course which we propose to take in the matter, we find it appropriate to say nothing about it.

The fourth ground says that:

B `The learned High Court Judge erred when he proceeded to write revisional order after consultations with the relatives of a convict, the respondent, after office hours, when there was a notice of appeal by the Advocate for the respondent.'

C This complaint is not without substance. Since the respondent was represented by Council, the learned Judge should have entertained the complaint through the respondent's Counsel and not through the respondent's relatives, unless of course, it can be said that the learned Judge did not D know that the respondent was represented at the trial.

On receiving the case file from the Trial Court the learned Judge no doubt became aware that the respondent had Counsel who had in fact acted very promptly, after the conviction was entered, by giving notice of appeal and applying for copy of the record. Nonetheless, the learned Judge brushed E aside the role of Counsel and proceeded the way he did, and on a Saturday which is a non-working day, as if to say that he felt he could champion the respondent's rights better than the retained Counsel. We think that such display of overzealousness may lead to undesirable consequences. Certainly it does not make for smooth administration of justice. At its worst it might provide the basis F for unfounded allegations, and we think it should not be encouraged.

And finally, the learned Judge did not give notice to the DPP if he wished to be heard on the proposed G revision. Admittedly, in terms of s 374 of the Criminal Procedure Act the judge, in a matter like this one, is not obliged to hear the parties on revision; it is left to his own discretion. But the practice in the High Court has been to notify the DPP if he wishes to be heard on the proposed revision. Yet in this case no explanation was given, and none is apparent, for departing from that practice. This practice H serves a number of practical purposes. To mention only one example. It affords the Court the assistance of Counsel. In the instant case, for instance, if the learned Judge had availed himself of the assistance of Counsel, we feel certain that the blunder or error which was committed would easily have been avoided. We would accordingly emphasize the need to adhere as far as possible to I that practice.

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In conclusion, we are satisfied that the learned Judge in dealing with this revision failed to apply the A relevant provisions of the law under which the respondent was charged, with the result that he wrongly quashed the respondent's conviction. We are equally satisfied that in so failing to apply the relevant provisions of the law, he cannot be said to have dealt with the merits or demerits of the respondent's conviction. Consequently we set aside the High Court order in revision and restore the B judgment of the District Court, with a direction that any party who was aggrieved by that judgment is at liberty to take the necessary steps as he deems fit.

1993 TLR p197

D

[zRPz]JESINALA MALAMULA v REPUBLIC 1993 TLR 197 (CA)

Court Court of Appeal of Tanzania - Mbeya

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

CRIMINAL APPEAL NO. 4 OF 1993 E
12 August, 1993
(From the conviction and sentence of the High Court of Tanzania at Mbeya, Mwaikasu, J.) F
Flynote
Criminal Practice and Procedure - Assessors - Judge removes the question of provocation from Assessors - Fatal to resulting conviction.
-Headnote
The appellant was found guilty and convicted of the murder of her husband. The Trial Judge found G that the appellant had been provoked by the deceased. Nevertheless the learned Trial Judge thought that the defence of provocation was not available to the appellant and directed the assessors not to consider this defence. On appeal the Court of Appeal of Tanzania considered the proprietary of the H Trial Judge's direction to the Assessors and the effect of removing the question of provocation from the Assessors.
Held: To remove the question of provocation from the Assessors when there is such provocation is fatal to the resulting conviction.
Case Information
Appeal allowed. Conviction for murder quashed, sentence of death set aside, appellant found guilty and convicted of manslaughter. I
1993 TLR p198
A No case referred to.
Ndibalema, for the appellant.
M.T. Mbise, for the respondent.
[zJDz]Judgment
B Mfalila, J.A., delivered the following considered judgment of the court:
The appellant Jesinala Malamula was found guilty and convicted of the murder of her husband Edison Mkasiwa. Upon this conviction she was sentenced to death. She lodged this appeal against C both her conviction and the sentence of death.
There was only one material witness in this case, namely Mesia d/o Edison (PW1), the daughter of both the appellant and the deceased. According to her, she was present when this sad event D between her parents took place. She said in her evidence that on 21 September 1988 her parents ie, the deceased (her father), the appellant (her mother) and Lutinala Nbasu (PW2) (her father's second wife) returned home from the pombe shop at 7 pm. On arrival, a neighbour one Masundi came and invited her parents to go to his home for a drink. He asked then to go and join his guests for a drink. E Her father did not go but he allowed his junior wife, Lutinala to go to Masudi's house as requested but he refused to let her mother, the appellant go, although she specifically asked for permission to do so. This led to a quarrel between the two particularly after the deceased had abused her in the F most foul language calling her foolish. The deceased warned the appellant that if she persisted in her intention to go to the drinking party, he would beat her. Thereupon the appellant challenged him to do so. The deceased like the man he was, accepted the challenge and advanced towards her. As he G did so, the appellant picked a pestle

which was near at hand and beat him with it on the shoulder and waist. But as the deceased was still advancing on her, the appellant beat him on the neck. The deceased fell down. At this stage, Mesia said, she raised an alarm and started crying. People came, including the deceased's junior wife. They carried the deceased into the house and the next morning H the deceased was taken to hospital where he remained for two weeks before being discharged. But two weeks later, the condition of the deceased deteriorated, he was taken back to hospital where he died a week later.

In her defence at the trial, the appellant denied these allegations. She denied beating the deceased I as alleged by her daughter (PW1) or asking for permission to go for a drink at Masudi's house.

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MFALILA JA

According to her, when the three of them returned home at about 7 pm on the day in question, their A neighbour one Masudi invited them for a free drink at his house. Her co-wife Lutinala (PW2) went to Masudi's house, but she and the deceased remained at home. She personally elected not to go, she said because she thought it was rather late. Later her daughter Mesia (PW1) told her that her father B had gone to the pombe shop. After some time the deceased returned home and he asked her why she continued drinking pombe in spite of his having prohibited her from drinking. The deceased then proceeded to assault her with his fists three times on the head. The appellant said she ran away. The deceased went back to the pombe shop. After some time as she was in her house, her C daughter Mesia called her out to come and see how the deceased was walking. When she went out she found the deceased had fallen down near the latrine.

In his summing up to the gentlemen Assesssors, the Trial Judge directed them to consider three D questions; first whether in the light of the evidence it is the appellant who caused the death of the deceased. Secondly whether the death was caused with malice aforethought. Thirdly, if malice aforethought is present, whether it was negated by the accused's intoxication. The Trial Judge E specifically directed the assessors not to consider provocation as a defence which is legally available to the accused. On this direction, the gentlemen Assessors were divided. Two of them advised that the accused was guilty of murder as the person who caused the death of the deceased and that although she had taken some pombe, she was not so drunk at the time she assaulted the F deceased as to render her incapable of forming a specific intention. The third gentleman Assessor differed saying that on the evidence the accused was incapable of forming a specific intention by reason of her drunkness. The Trial Judge accepted the advice of the majority Assessors and found G that the accused before him had killed her husband with malice aforethought by reason of the weapon used and that at the time she was not so drunk as to be rendered incapable of forming a specific intent. Accordingly he found her guilty of murder and sentenced her to death. H

In this appeal, Mr Ndibalema learned Advocate filed two grounds of appeal, that the learned Trial Judge erred in law and fact when he failed to consider the appellant's possible defence of provocation and secondly that the learned Trial Judge erred in law and fact when he rejected the

I appellant's defence of intoxication in the circumstances of this case. At the hearing of the appeal, Mr Hdibalomo
1993 TLR p200
MFALILA JA
A quite properly abandoned the defence of complete denial advanced at the trial. He accepted the prosecution case that it is the appellant who killed the deceased, but he submitted that this was done without any intention on the appellant's part to kill her husband. Firstly, he said that this death occurred following a family drunken brawl in which the appellant picked a weapon ready at hand and B inflicted it on non-vulnerable parts of the body. Secondly, he submitted that in this case the deceased seriously provoked the appellant by his threats to beat her and abusing her in the most foul manner in the presence of their young daughter. In the circumstances he said, the appellant should C have been convicted of the lesser offence of manslaughter.
We are satisfied that this was a typical family brawl which was not helped by the pombe which both D parties had taken from 2 pm to 7 pm. We think it is unfortunate that the defence at the trial was not competently handled. The appellant was allowed to embark on a futile exercise of complete denial when the evidence supporting her role in the killing of her husband was so glaring, provided by none other but her own daughter who professed to love both her parents. Similarly, Defence Counsel at E the trial embarked on a futile exercise to discredit the girl Mesia as a witness. Defence Counsel should have energetically advanced the twin defences of provocation and intoxication which are so clearly brought out by the record. Defence Counsel should have used the evidence of PW1 to defend F the appellant rather than trying to discredit it. From the evidence of PW1, it is clearly brought out that the deceased used foul language to abuse the appellant in the presence of their young daughter. He threatened to beat her and indeed was going to make good his threat when the appellant decided to stop him. In view of the deceased's previous conduct of beating his wives whenever he was drunk, G the appellant was entitled to take his threats seriously. These certainly were provocative acts on the part of the deceased. But the Trial Judge thought this defence was not available to the appellant and directed the Assessors accordingly. We intend to reproduce in full the Trial Judge's summing up on this point because it contains such serious misdirections that our comments may help to avoid H such pitfalls in future. He stated:

`Now turning to the defence of provocation, the evidence we have for the defence that tends to establish the same is that following a quarrel with the deceased, the deceased beat her on her head three times with a fist after when she I ran away, and the deceased left her and went away too. Assuming for a moment that the accused picked the pestle
1993 TLR p201
MFALILA JA

and beat the deceased as alleged, and of course that would have to be regarded to have been so done in the heat A of passion, while there was no time for her to cool, which then could be said to have deprived her of the power of self control, the next and important question that would have to be answered, is whether by the use of the pestle as alleged, what she did as

she beat the deceased with it could be said to have been of the nature of or commensurate B with the assault alleged to have been done by the deceased to her. To that I would clearly give a `no' answer. In the circumstances, the use of a pestle in repelling such deceased's alleged assault, was totally out of proportion and gravely excessive force. Accordingly I cannot put to you that there was such legal provocation as to constitute a valid defence for the accused. So do not have to labour yourselves considering such a defence. Apparently should C you accept the evidence of PW1, the only eye witness and daughter of the accused, it would appear that the deceased, thought he threatened to beat the accused and did approach her for the purpose empty handed, the accused ran away before she was beaten.' D

Since the Judge found that there was provocation, he should not have removed the question from the Assessors and decided it on his own. This Court has held on a number of occasions that to remove E the question of provocation from the Assessors when there is such provocation is fatal to the resulting conviction, for it is impossible to know that the Assessors would have said had the question been put to them.

In this case there was provocation in the form of insults and threats to beating and the parties had F been drinking, this made it a typical family brawl. Mr Mbise, learned State Attorney had at first supported the appellant's conviction, but on second thoughts, decided that the appellant's conviction for murder cannot be supported. He said that on the evidence she should have been convicted of manslaughter. G

We agree, and for the reasons we have given, we allow the appeal, quash the appellant's conviction for murder and set aside the sentence of death. Instead we find her guilty of the lesser offence of manslaughter and convict her of this offence. H

As to the sentence, we think that the appellant's criminality was not as such a level as to call for a severe punishment. As we have indicated, it was a family brawl following a long session of drinking which culminated in insults and threats. The appellant may have thought she had a genuine I grievance at her being refused permission to go for a drink while her co-wife was allowed, even if the

A deceased may have had good reasons for doing so. She has been in custody since 1989. This makes it about four years. As she herself stated, she loved her husband, she could hardly therefore have wished to cause his death.

In the result we sentence the appellant to such term of imprisonment as will result in her immediate B release from prison.

C

[zRPz]ANANGISYE MASENDO NG'WANG'WA v REPUBLIC 1993 TLR 202 (CA)

Court Court of Appeal of Tanzania - Mbeya

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

D CRIMINAL APPEAL NO. 5 OF 1993

13 August, 1993

E (From the conviction and sentence of the High Court of Tanzania at Mbeya, Mwaikasu, J.)

Flynote

Evidence - Murder - Conviction based mainly on the evidence of a single witness - Whether such conviction can F stand.

Evidence - Defence of Alibi - Alibi raising no reasonable doubt on the prosecution case - Effect thereof.

-Headnote

G The two appellants were jointly charged with and convicted of murder. They were each sentenced to death. They appealed against both conviction and sentence on two grounds: Firstly that their conviction was wrongly based on the evidence of a single witness, and secondly that their defences of alibi raised during the trial of the case were rejected on insufficient grounds.

H Held: (i) Since the learned Trial Judge had warned himself of the danger of relying on a single witness in a serious charge of murder and since he was satisfied that he could safely act on that evidence to convict the appellants, the learned Judge was entitled to so convict;

(ii) The appellants' defences of alibi did not raise any reasonable doubt on the prosecution case and were properly rejected.

Case Information

I Appeals dismissed.

1993 TLR p203

No case referred to. A

J.E. Kayange, for the appellant.

M.T. Mbise, for the respondent.

[zJDz]Judgment

Kisanga, J.A., delivered the following considered judgment of the court: B

The two appellants were jointly charged with and convicted of murder contrary to s 196 of the Penal Code, and were each sentenced to death by the High Court (Mwaikasu J) sitting here in Mbeya. They have now appealed against both conviction and sentence. Before us the appellants were C represented by Mr Kayange, learned Advocate, while Mr Mbise, learned State Attorney, appeared for the respondent Republic.

The Republic alleged that on the day of the incident the deceased and his sister (PW1) set out to go D to a funeral of a relative. On the way they met the appellants who stopped them, blew a whistle which attracted three more others to the scene after which the whole group set upon the deceased and beat him up using sticks and clubs. After the assault the deceased was never seen alive again. His dead body was recovered from a river about a week later bearing cuts and stab wounds. The E cause of death was haemorrhage due to cut wounds. The appellants' defences were a flat denial coupled with an alibi. The Trial Court rejected their defences and convicted them as charged.

Mr Kayange filed three grounds of appeal which essentially raise the issue of credibility of the F witnesses. He complained that the appellants' conviction was wrongly based on the evidence of a single witness and that the appellants' defences of alibi were rejected on insufficient grounds.
Admittedly the appellants' conviction was based mainly on the evidence of a single witness. This was G Enelise Nomba (PW1), the deceased's sister who on the fateful day had accompanied the deceased to the funeral of their relative. The learned Trial Judge was fully aware of this aspect of the evidence, and specifically addressed himself to that issue. At the end of the day, however, he found H that he could safely act on that evidence to convict the appellants. This is what he said in his judgments:

`While fully aware of the danger of relying on a single witness in a serious charge like this, this Court is clearly of the view that bearing in mind the fact that this incident took place in broad daylight while I

A the PW1 was very close to the assailants, and had ample time to have a close, careful and clear look at them all, and that in all respects the PW1 appeared to have been telling the truth, it can confidently and safely walk on the rope of the evidence of the PW1 to the sacred end of justice in this case. There is therefore, no hesitation in placing B reliance in the evidence of the PW1, though the only eye witness in this case.'

On the material before him, the learned Judge was entitled to come to that conclusion and we can find no valid ground for complaint. Furthermore, in addition to the factors mentioned by the learned C Judge, the witness knew the appellants well before the day of the incident, indeed she said she is related to Masendo, the first appellant. That would strengthen the Judge's finding that PW1 could not have mistaken the identity of the appellants. Again when PW1 arrived at the place of the funeral she D disclosed the incident and mentioned the appellants to be among the assailants. Such promptness in reporting the incident and the consistency in mentioning the appellants as the culprits would tend to lend credence to her story. And finally she testified that there were five assailants altogether but of these she knew only the two appellants. The view may be taken that if she were given to E exaggeration she might claim that she had recognized the whole group.

There was evidence also that the news of this attack and the disappearance of the deceased immediately thereafter spread widely in the locality. There was further evidence that both appellants F were members of the local militia popularly known as `Sungusungu'. The appellants in their defences, however, claimed that they were not at all aware of this incident having happened in their locality. The Trial Judge found it strange that the appellants who as members of `Sungusungu' were, G on their own admission, concerned with matters of security in the locality, should not have known of the incident until their arrest three days after the incident. The Judge took the view that the appellants' denial of any knowledge about the incident was an attempt to avoid any suspicion being cast upon them in conjunction with their involvement in causing the death of the deceased. We H cannot say that such inference was unjustified.

Not only that. There was evidence that only two to three weeks prior to the incident, the appellant Fabian, in a group of other persons unknown, had mounted an ambush attack on the deceased, for which the said appellant was prosecuted, convicted and fined, and ordered to compensate the I deceased Shs 10,000/=

1993 TLR p205

KISANGA JA

which he had taken from him during the attack. So far the appellant had refunded only Shs 2,000/= A and the remaining Shs 8,000/= was due to be paid on a Monday but then this incident happened on the preceding Friday. The appellant Fabian, therefore, nursed a grudge against the deceased and that would provide motive for the subsequent and fatal attack on the deceased. It is clear, therefore B that the appellants' convictions were not based on the evidence of the single witness (PW1) alone. There was also other circumstantial evidence which tended to implicate the appellants with the offence.

In their respective defences of alibi, the first appellant Anangisye had stated that on the day of the incident he was at his home, and the second appellant Fabian claimed that he had gone to the C District Court in Tukuyu to lodge an appeal in the said case involving him and the deceased. The Trial Court duly considered the defences and rejected them. The appellant Anangisye could very well have been at his home as he claimed. But there was nothing to prevent him from going to commit D the offence and then return home. The same may be said of the appellant Fabian. He could have been to Tukuyu District Court to transact business there and then returned to his locality in Kiwira in time for the incident which happened at about 3 pm. We do not think that the defences of alibi are E such as would raise any reasonable doubt on the prosecution case, and like the Trial Judge we reject them.

The Trial Judge considered the fact that the deceased was found to have sustained cut and stab wounds which caused his death, while the only evidence received was that the appellants and the F rest of their group were seen attacking the deceased with sticks and clubs; no sharp weapons were seen. He resolved the matter by saying that since the deceased was assaulted as he was being held by the appellants, and since the deceased was never seen again alive after such assault, then the appellants, must have known how the deceased came to sustain these wounds. That is, the G appellants must have been parties to the inflicting of those wounds on the deceased. For our part we cannot say that such inference was erroneous.

Upon a careful study of the record we satisfied that the appellants' convictions were amply justified. H We find no merit in the appeals which are accordingly dismissed in their entirety.

1993 TLR p206

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[zRPz]ITIKA KETTA MWAKISAMBWE v MARA COOPERATIVE UNION (1984) LTD 1993 TLR 206 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

B CIVIL APPEAL NO. 24 OF 1993

30 August, 1993

C (From the Ruling of the High Court of Tanzania at Mwanza, Masanche, J.)

Flynote

Labour Law - Summary dismissal - Jurisdiction of the courts in cases of summary dismissal - Security of Employment Act, Cap 574.

D Constitutional Law - Basic rights enshrined in the Constitution - The right to seek redress in court and ouster of court's jurisdiction - Section 28 of the Security of Employment Act and article 30 of the Constitution.

-Headnote

E The appellant was summarily dismissed from employment by the respondent. He filed a suit in the High Court to contest the dismissal. The respondent did not file a written statement of defence but the High Court struck out the suit for want of jurisdiction in terms of s 28 of the Security of Employment Act (Cap 574). On appeal the appellant raised the question whether s 28 of the Act was constitutional.

F Held: (i) A claim that a basic right is violated is triable in the first instance by the High Court, not the Court of Appeal;

(ii) As the appellant was unrepresented, the question of the jurisdiction of the High Court in matters of summary dismissal took him unawares, making it impossible for him to answer it properly; the High Court thus struck out the suit without taking into account the appellant's G real answer to the question.

(iii) The appellant should be given an opportunity to address the High Court on the issue of constitutionality of the ouster of jurisdiction of the High Court.

Case Information

H Order accordingly.

No cases referred to.

Dyabusha, for the respondent.

[zJDz]Judgment

Kisanga, J.A., delivered the following order of the court:

I The appellant was summarily dismissed from employment by the respondent, The Mara Cooperative Union, his employer. He filed a

suit in the High Court against such summary dismissal. The respondent Union did not file its written A statement of defence in time. Whereupon the appellant applied for an ex-parte proof of his claim which was duly granted. On the day set for the ex-parte proof, however, the presiding Judge struck out the suit for want of jurisdiction in terms of s 28 of the Security of Employment Act (cap 574) B which ousts the jurisdiction of the court in matters of summary dismissal. The appellant was aggrieved by that decision, hence this appeal.

The appellant appeared and conducted the appeal in person while the respondent Union was represented by Mr Dyabusha, learned advocate. In his memorandum of appeal and his written C submissions, the appellant raises the issue of constitutionality of s 28 of the Security of Employment Act which, as it were, prevents him from knocking on the door of the High Court to have his grievance redressed. He says that the s violates his basic right under article 30(3) of the Constitution D of the United Republic of Tanzania.

Thus it becomes obvious that the appellant is alleging a violation of a basic right. While such a claim is triable by the High Court in the first instance, the appellant is raising it for the first time in this appeal. This Court has no competence to deal with the matter as a court of first instance. E

On the day the appellant came to court for ex-parte proof of his case, the Trial Judge asked him if the Court had jurisdiction over the matter in view of the Security of Employment Act. Obviously the appellant was taken unawares and the only answer he could give was that he was advised by a F magistrate and the labour officer that he could do so. Whereupon the learned Judge stated that he was going to strike out the case, and immediately adjourned the matter for this purpose. It is in the course of appealing against the decision to strike out his case that the appellant has raised the issue G of violation of his basic rights.

As stated before, the appellant was taken awares. He never expected to be questioned by the Judge on the issue of jurisdiction, and so he was least prepared for it. Worse still, he was a layman who was in no position to avail himself of any legal counsel immediately to answer the Judge's question in H court. We think that had he been given notice or sufficient notice of the issue put to him by the Trial Judge, he would have come up with an answer which raises the issue of the constitutionality of s 28 of the Security of Employment Act, as indeed he has done in this appeal.

So that as the matter stands now, the Judge's ruling cannot be I

A said to have taken into account the appellant's real answer to the question put to him.

In the circumstances we think that the appellant should be afforded the opportunity to respond fully in the High Court to the issue of ouster of jurisdiction of the court in matters of summary dismissal. B Consequently, the ruling of the High Court is set aside. The matter is sent back to the High Court with a direction to hear the appellant on the issue of ouster of jurisdiction of the court and, in the process determine the constitutionality or otherwise of s 28 of the Security of Employment Act which C sanctions such ouster of Court's jurisdiction. Any party who is dissatisfied with the decision of the High Court on that issue should be at liberty to appeal to this Court.

1993 TLR p208

E

[zRPz]RAZA SOMJI v AMINA SALUM 1993 TLR 208 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Kisanga JJA, Mnzavas JJA and Mfalila JJA

CIVIL APPEAL NO. 45 OF 1992

F 30 August, 1993

(From the decision of the High Court of Tanzania at Mwanza, Sekule, J.)

Flynote

G Civil Practice and Procedure - Appeals - Memorandum of appeal - Memorandum of appeal makes no reference to undue influence and no leave of Court sought and obtained to argue the issue on appeal - Whether the Court may entertain the issue suo motu - Rights of the other party - Order 39 rule 2, Civil Procedure Code.

-Headnote

H The appellant and respondent entered into an oral agreement for an exchange of residential premises. After executing the agreement the respondent sought to rescind the agreement and the landlord acting under the orders of the Housing Allocation Committee reinstated the tenancy to the respondent. The appellant filed a suit in the District Court for specific performance of the agreement I and general damages

1993 TLR p209

for breach of contract. The court allowed the claim. The respondent appealed to the High Court and A found that the respondent was justified to rescind the contract because it was concluded by undue influence exercised on her by, inter alia, the appellant. The appellant appealed to the Court of Appeal of Tanzania. Counsel for the appellant argued that the issue of undue influence was not raised on the pleadings and therefore by considering and making a finding on that issue the learned Judge erred B for two reasons. First, he relied for his decision of the appeal on a ground which was not raised in the memorandum of appeal or which was not raised with the leave of the court during the hearing of the appeal. Secondly, the Judge did not afford the appellant the opportunity to be heard on the issue. C

Held: (i) The ground of undue influence was, on the evidence, disclosed but was not set forth in the memorandum of appeal. Rule 2 of order 39 of the Civil Procedure Code empowered the learned Judge to raise it suo motu. However under the proviso to that rule the Judge was enjoined to give the appellant the opportunity to contest the issue before resting his decision on it as he did; D

(ii) The learned Judge failed to afford the appellant the opportunity to be heard on the issue, as such he was clearly in error;

(iii) The provisions of rule 2 of order 39 of the Civil Procedure Code are mandatory, their infringement is fatal, and thus the finding on the issue of undue influence in this case was invalid. E

Case Information

Appeal allowed.

No cases referred to.

Magongo, for the appellant. F

[zJDz]Judgment

Kisanga, J.A., delivered the following considered judgment of the court:
The appellant and the respondent entered into an oral agreement for an exchange of residential G premises. The appellant offered the respondent a house in Nyakato area in exchange for a flat occupied by the respondent in the centre of the Municipality of Mwanza. The appellant, in addition gave Shs 200,000/= to the respondent as disturbance allowance upon her vacating the flat.
Pursuant to the agreement the respondent's landlord, the Registrar of Buildings, upon the H respondent's request, acceded to the parties' wishes and duly allocated the flat to the appellant, following which the appellant went into occupation and made substantial renovations to the premises amounting to about Shs 2,000,000/=. Subsequently, however, the respondent changed her mind and I sought to dishonour or rescind the agreement. The landlord, the
1993 TLR p210
KISANGA JA
A Registrar of Buildings, acting under orders of the Housing Allocation Committee, reinstated the tenancy to the respondent. Whereupon the appellant filed a claim in the District Court for specific performance of the agreement and general damages for breach of contract. The Court allowed the claim for specific performance and further directed the return of the Shs 200,000/= to the appellant, B as it appeared that the respondent was denying ownership thereof.
The respondent appealed to the High Court which set aside the order for specific performance. In so doing the High Court found that the respondent was justified to rescind the contract because she C was made to conclude that contract by undue influence exercised on her by the appellant and possibly by her own husband. It is from that decision that this appeal now arises.
Before us the appellant was represented by Mr Magongo, learned advocate, while the respondent conducted the appeal in person.
D Mr Magongo filed four grounds of appeal which essentially raised two issues, namely,

(a) Whether on the evidence there was any undue influence, and

(b) Whether it was open to the learned Judge to make a finding on that issue which was not E raised on the pleadings.

We propose to consider ground (b) first. Mr Magongo rightly observed that the issue of undue F influence was never raised on the pleadings. The crux of the respondent's defence was couched in paras 4 and 5 of her written statement of defence in the following terms:

`4. That it is not true that both the defendant/plaintiff are tenants of the Registrar of Buildings at Plot No 10 Block G `R'. Defendant aver (sic.) that she does not known the plaintiff in any way.

5. That contents of para 4 and 5 are a total lie as the defendant has never seen the plaintiff before and hence no agreement could have been entered into between them. The alleged contract, is purely a fraud and the H defendant would prove it.'

The respondent was clearly asserting that the appellant was a stranger and that she could not have entered into an agreement with such a stranger. She does not allege undue influence. Nor was I undue influence one of the issues framed. The issues as framed at the trial were:
1993 TLR p211

KISANGA JA

`ISSUES AGREED UPON AS FOLLOWS: A

1. Whether or not there was an oral agreement between the parties for exchange of services.

2. Reliefs, if any, to which the parties are entitled.'

The learned Judge, however, found that the respondent in the course of her evidence at the trial did B raise the issue of undue influence, and he criticised the Trial Magistrate for failing to consider it. This is what he said:

As already said, the Trial Court did not touch on this issue i.e. undue influence. It concerned itself only with the issue C of offer and acceptance. But the appellant otherwise in my view clearly raised this issue in her testimony in defence.

In order to remedy the omission, therefore the learned Judge proceeded to consider the issue and accordingly made a finding of it as shown above. D

Mr Magongo submitted that in considering and making a finding on that issue the learned Judge erred for two reasons: First, he relied for his decision of the appeal on a ground which was not raised in the memorandum of appeal or which was not raised with the leave of the Court during the hearing E of the appeal. Secondly he did not afford the appellant the opportunity to be heard on the issue. He relied for this submission on the provisions of Order 39 rule 2 which provide that:

`2. The appellant shall not, except by leave of the Court, urge or be heard in support of any ground of objection F not set forth in the memorandum of appeal: but the Court, in deciding the appeal, shall not be confined to the grounds of objection set forth in the memorandum of appeal or taken by leave of the court under this rule: G

Provided that the Court shall not rest its decision on any other ground unless the party who may be affected thereby has had a sufficient opportunity of contesting the case on that ground.' H

The first leg of Mr Magongo's complaint is wholly justified. The respondent's memorandum of appeal to the High Court makes no reference whatever to the issue of undue influence, and there is no indication in the record that the respondent obtained or sought leave to take that ground at the I hearing. The second leg of Mr Magongo's complaint is equally justified. If the learned Judge was

A of the view that the ground of undue influence was, on the evidence, disclosed but was not set forth in the memorandum of appeal, we think that rule 2 of Order 39 empowered him to raise it suo motu. However, under the provisio to that rule he was enjoined to give the appellant the opportunity to contest the issue before resting his decision on it as he did. Mr Magongo who had also represented B the present appellant in the High Court says that no such opportunity was afforded to his client. Indeed according to him, he was taken by surprise when he read the High Court judgment and for the first time noticed that the Judge had raised and dealt with that issue there. In all this the learned C Counsel is supported by the record. Thus to the extent that

the learned Judge failed to afford the appellant the opportunity to be heard on the issue, he was, with due respect, clearly in error.

Our understanding of rule 2 of Order 39 is that its provisions are mandatory and the infringement D thereof is fatal. In the context of the present case this means that the finding on the issue of undue influence is invalid and ought to be set aside.

On the remaining ground Mr Magongo submitted in effect that on the evidence no undue influence E was disclosed. However, having held that the finding on that issue was invalid, it would serve no practical purpose now to go further into the matter. And since the decision of the learned Judge in this appeal was rested solely on the issue of undue influence, the view we have taken on that issue also disposes of the appeal itself.

F In the result the appeal is allowed. The decision of the High Court is set aside and that of the District Court is restored.

As stated before, the Trial Magistrate ordered the return of the Shs 200,000/= to the appellant because the respondent appeared to deny ownership of it. This was somewhat strange because the G money which was put in a fixed deposit at the bank was in her own name and she was keeping the fixed deposit certificate. However at the hearing of this appeal she assured us that she has been renewing the deposit every year, which clearly shows that she acknowledges the money to be hers. On that account we reverse the order of the District Court in this regard and order that the sum of H Shs 200,000/= be restored to the respondent.

The appellant is to have his costs of this appeal.

1993 TLR p213

A

[zRPz]HAMISI MEURE v REPUBLIC 1993 TLR 213 (CA)

Court Court of Appeal of Tanzania - Dodoma

Judge Omar JJA, Mnzavas JJA and Mfalila JJA

CRIMINAL APPEAL NO. 112 OF 1993 B

25 October, 1993

(From the conviction and sentence of the High Court of Tanzania at Dodoma, Mwalusanya, J.) C

Flynote

Criminal Practice and Procedure - Statement of witness or substance of evidence not read at committal proceedings - Whether witness can testify for prosecution at the trial - Section 289(1) of the Criminal Procedure Act, 1985. D

Criminal Practice and Procedure - Witness - Notice to accused or Advocate of intention to call witness - Contents of such notice - Criminal Procedure Act 1985, s 289(2).

Evidence - Extra-judicial statement retracted at trial - Whether it can be relied upon. E

-Headnote

The appellant was convicted of murder and was sentenced to death on the basis of the identification of a witness who saw him driving the stolen cattle of the deceased and on his

alleged confession made to a Justice of the Peace. The statement written by the Justice of the Peace was not read at the committal proceedings. The Justice of the Peace was called as a prosecution witness without F the appellant or his advocate being given reasonable notice. At the trial, he retracted the extra- judicial statement he made to the Justice of the Peace.

Held: (i) The learned Trial Judge erred in law in allowing evidence of the Justice of the Peace to be given at the trial when his statement had not been read at the committal proceedings and no notice had been given to the appellant or his advocate, and therefore, the extra-judicial G statement was wrongly admitted;

(ii) Section 289(2) of the Criminal Procedure Act, 1985, makes it mandatory for not only the name and address of the witness to be supplied, but also the substance of the evidence H which he intends to give;

(iii) Since the extra-judicial statement was clearly retracted at the trial, the Trial Judge should not have relied on it without warning himself of the dangers of convicting on a retracted confession.

Case Information

Appeal dismissed.

No case referred to. I

1993 TLR p214

A Rweyongeza, for the appellant.

Ndunguru, for the respondent.

[zJDz]Judgment

Mfalila, J.A., read the following considered judgment of the Court:

B The appellant Hamisi Meure was convicted of the murder of one Abubakari s/o Shabani and was sentenced to death by the High Court sitting at Dodoma (Mwalusanya J). He lodged this appeal against both his conviction and the sentence of death.

C At the trial two witnesses gave evidence for the prosecution. These were the deceased's neighbour Erkadi s/o Mwakagile (PW1) and the Justice of the Peace David Mzuri (PW2). Erkadi Mwakagile whose evidence was hotly contested both at the trial and in this Court, told the Trial Court that on 16 March 1989 at about 1.10 am he was awakened by an alarm from the deceased's house. D He proceeded there and found the deceased's two wives crying. The deceased himself was sprawled on the ground with serious injuries. The deceased then told him with difficulty, for he was barely conscious, how bandits had attacked him and stolen his sixteen cattle, forty goats and two sheep. The deceased died soon after that. However the villagers organised themselves into two E groups and started to trace the cattle thieves. The following day, 27 March 1989 at about 4 pm they caught up with the thieves driving the stolen cattle. When they got sufficiently close to the gang, the witness said that he identified the stolen cattle to be the deceased's as some of his own were in that F herd. He also identified two of the eight bandits. He identified the appellant clearly because he said they had been village mates for the last ten years. He also identified another who was charged as the third accused and whom he named as Chimingati Meure. He was acquitted at the trial. In the ensuing G fight, the bandits were overpowered and they ran away leaving their loot behind, but one of their number, Koyesa was

arrested but he died later apparently of wounds sustained in the fight. The stolen cattle were returned to the village. The appellant and the third accused at the trial Chimingati H Meure were later arrested and charged with this offence.

The Justice of the Peace, Davis Mzuri recorded the appellant's extra-judicial statement admitted at the trial as exhibit B in which he admitted taking part in the raid at the deceased's homestead, but he explained that he was an unwilling participant as he had simply been forced to join the raiding party I when he met them. He confirmed that the third accused was an active participant.

1993 TLR p215

MFALILA JA

In his defence at the trial, the appellant denied taking part in the raid in which the deceased was A killed. He said that he was just arrested for reasons he did not understand. After his arrest, he was subjected to severe beatings in the course of which he was forced to go to the Justice of the Peace where he made the extra-judicial statement exh B. He was told what to say in that statement and that B the names he supplied were given him by the Police Investigating Officer.

After a very careful summing up, the Assessors accepted the evidence of PW1, that he identified both the appellant and the third accused at the scene while they were driving away the cattle. The C assessors also accepted the extra-judicial statement exh B as having been freely and voluntarily made. On these two pieces of evidence, the assessors found both the appellant and the third accused guilty as charged. However, the learned Judge stated that while he was able to go along with the Assessors on the guilt of the appellant, he was unable to agree with them on the guilt of the D third accused. Incidentally, the second accused had been acquitted at the close of the prosecution case. The learned Judge was of the view that while PW1 was indeed a truthful witness, his truthfulness did not extend to his alleged identification of the third accused. In fact, the learned Judge E found that PW1 lied on three points. He lied when he stated that he knew the third accused, that he lied when he said that the third accused was a resident of Case Village when in fact he lived in Msanga Village which is some fifty kilometres away. (The learned Judge was still using the now defunct imperial system when he stated that Msanga is thirty miles away). And lastly that PW1 lied F when he said that the third accused's name is Chimingati s/o Meure when he is Chimingati s/o Ndyongo. In the circumstances, he said that he was not persuaded that PW1 knew the third accused before the incident to enable him make a correct identification. He therefore convicted the appellant G as having been correctly identified by PW1 his long time village mate and acquitted the third accused. The learned Judge also found that PW1's identification of the appellant was corroborated, if corroboration was necessary, by the appellant's own extra-judicial statement. H

In this appeal, Mr Rweyongeza learned Counsel who appeared for the appellant filed four grounds of appeal. In ground No 1, he complained that the learned Trial Judge erred in law in allowing the evidence of PW2 to be given at the trial when his statement had not been read at the committal proceedings and no notice had been given to the appellant or his advocate. During the hearing I

1993 TLR p216

MFALILA JA

A of the appeal, Mr Rweyongeza submitted that in the absence of a reasonable notice, PW2 the Justice of the Peace was barred from being called as a witness under s 289(1) of the Criminal Procedure Act because the substance of his evidence was not read at the committal proceedings. This section provides as follows:

B `289(1) No witness whose statement or substance of evidence was not read at committal proceedings shall be called by the prosecution at the trial unless the prosecution has given a reasonable notice in writing to the accused person or his advocate of the intention to call such witness.

C (2) The notice shall state the name and address of the witness and the substance of the evidence which he intends to give.

(3) The Court shall determine what notice is reasonable, regard being had to the time when and the circumstances under which the prosecution became acquainted with the nature of the witnesses's evidence and determined to call D him as a witness. No such notice need be given if the prosecution first became aware of the evidence which the witness would give on the date on which he is called.'

E Mr Rweyongeza added that ss (3) is not applicable because the prosecution became aware of the existence of such evidence as far back as 3 November 1992 during the preliminary investigation when the first accused, the present appellant intimated that he had been threatened into making the extra judicial statement to the Justice of the Peace.

F At the trial, when the defence objected for the same reasons that the Justice of the Peace (PW2) should not be called as a witness, the learned Judge overruled the objection in the following words:

G `However it is my view that since yesterday 10 February 1993 (ie the day before the trial began on 11 February 1992) the defence became aware of the application for summons for the prosecution witnesses that was written about three weeks ago. In that application for summons, the name of Mr Mzuri appears and it is written that he is a Justice of the Peace. As it is written that he is a Justice of the Peace, the defence Counsel must have known that the H substance of the evidence that this witness would give concerns the extra-judicial statement he must have recorded. So the Defence Counsel today was not taken by surprise. If he required more reasonable notice, the Defense Counsel should have said so yesterday when he became aware of the calling of this witness. It is my view that the I period from yesterday morning to this day is sufficient notice to the Defence.'

1993 TLR p217

MFALILA JA

We think, with respect, that this passage contains assumptions which, even if they were to be A proved correct, could not meet the rigid and mandatory requirements of s 289. Even if the application for witness summons were to be regarded as a notice under this section, which it cannot, there is not basis for believing that it was seen by either the appellant or his Counsel. Secondly, ss (2) makes B it mandatory for not only the name and address of the witness to be supplied, but also the substance of the evidence which he intends to give. There is no room for

the defence to be left guessing as the learned Judge seems to suggest. Thirdly, since the prosecution became aware of the existence of such evidence four months before the trial opened, there was no justification for the C Court to pin down the Defence to a day's notice and call such notice reasonable under ss (3). In any event, we were surprised by the Judge's remark that if Defence Counsel had required more reasonable notice he should have said so earlier, when that was exactly what Counsel had demanded when arguing his objection. It having been accepted by the prosecution and the Judge D himself that PW2 did not feature in the record of committal proceedings, he should not have been allowed to give evidence in contravention of the provisions of s 289 which are mandatory. In the circumstances we agree with the complaint in ground 1 and hold that PW2 was wrongly allowed to E give evidence. Mr Ndunguru learned State Attorney who appeared for the Republic conceded that PW2 would not have been allowed to give evidence before complying with the mandatory provisions of s 289 of the Criminal Procedure Act 1985. F

Mr Rweyongeza argued grounds 2 and 3 together because they both touched on the credibility of PW1. In these two grounds, he complained that the Trial Judge should not have found PW1 a truthful witness in respect of one accused and a liar in respect of the other and that he should have found G PW1 an unreliable witness particularly after considering the statement this witness gave to the police and the evidence he gave in Court.

As we have already indicated, the learned Trial Judge found that PW1 had lied on three matters. However on our part, we think the learned Judge over-reacted to the differences between the H evidence of PW1 and that given by the third accused. PW1 told the Trial Court that he knew the third accused, while the third accused said that he did not know him. PW1 said that the third accused lived in Chasa Village while the third accused denied this saying that he lived in Msanga Village fifty I kilometres away. PW1 said that the third accused's name was Chimingati s/o Meure while the third

A accused said he was Chimangati s/o Ndyongo. Were these differences sufficient to suddenly turn PW1 into a liar when the Court had just evaluated him to be a truthful and reliable witness? The Trial Judge should have realised like the Assessors that the third accused had every reason to deny PW1's allegations about him, whereas PW1 had no reason to lie against the third accused. The Trial B Judge did not state where he got the impression that the third accused was a total stranger to PW1 apart from third accused's own denials. Indeed when cross-examined by Defence Counsel, PW1 stated categorically that:

C `The third accused is my village mate at Chase - he is called Chimingati Ndyongo s/o Meure. He does not stay at Msanga Village.'

PW1 was therefore aware of the third accused's other surname `Ngyongo' and in any case he D definitely knew his first name `Chimingati' which was not disputed. We are in the circumstances satisfied that the Trial Judge wrongly, even unfairly branded PW1 a liar. The Assessors' assessment of PW1 as a truthful and reliable witness was the correct one even after taking into account the E difference between what he said in Court and what he stated in his

police statement exh A. In Court, he said that his group did not fight the bandits, but in the police statement he stated:

F `. . . Hapo tulizitambua ng ombe hizo na mbuzi ndizo zenyewe nilizooibiwa kwa marehemu, ndipo tukaanza mapigano ya mishale bahati tukawazidi nguvu wezi hao na kumkamata mmoja wao aitwaye Koyesa s/o Chimingati . . .'.

G It should be remembered that according to this witness, the search party was divided into two groups, the witness belonged to the group which was in front. But since the two groups were on the same mission, they were just one large group divided into two sections, so that when the witness was describing the events while at the police station, he chose to treat the whole search party as one H and he considered himself a member of the entire search party. But in his evidence in Court, he chose to be more detailed, describing that each section of the group did. We can therefore see nothing in this to make PW1 a liar and unreliable. In the circumstances we reject the complaints in grounds 2 and 3.

I In view of our finding that PW2 should not have allowed to give evidence in contravention of s 289, it follows that the extra-judicial

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statement was wrongly admitted and therefore we need not deal with the complaint in ground 4 A namely that the learned Judge misdirected himself in relying on the extra-judicial statement of the appellant in complete disregard of the circumstances under which it was made. But we would like to point out that as it was clearly retracted at the trial, the Trial Judge should not have placed any B reliance on it without warning himself of the dangers of convicting on a retracted confession.

However as we hope we have clearly indicated, the Trial Court was perfectly and rightly entitled to base the appellant's conviction on the evidence of PW1 once they had evaluated him as they did, to be a truthful and reliable witness. The third accused should consider himself lucky for being C acquitted. The appellant was rightly convicted on the basis of the doctrine of recent possession.

The appeal has no merit, we accordingly order that it be dismissed. D

1993 TLR p220

E

[zRPz]MAGENDO PAUL AND ANOTHER v REPUBLIC 1993 TLR 220 (CA)

Court Court of Appeal of Tanzania - Dodoma

Judge Omar JJA, Mnzavas JJA and Mfalila JJA

CRIMINAL APPEAL NO. 99 OF 1993 F

25 October, 1993

(From the conviction and sentence of the High Court of Tanzania at Singida, Maina, J.) G

Flynote

Evidence - Strong circumstantial evidence - Only remote possibility left in favour of an accused - Whether sufficient proof of charge established. H

-Headnote

The appellants were jointly convicted of murder and sentenced to death. Their conviction was based on circumstantial evidence. The appellants together with another person (who was also accused but died in remand prison) were village militiamen who were ordered by the village secretary to guard the I deceased who had been locked in a cell on allegations of

A rape. Later the deceased was found hanging by the neck from a piece of cloth. At their trial in the High Court, both appellants denied killing the deceased and contended that the deceased must have committed suicide by hanging himself. The prosecution relied on the evidence of the doctor who conducted the post mortem. His report, which was not disputed by the defence, showed that the B cause of death was `peripheral circulatory failure caused by bleeding and severe pain after perforation of the eye by a sharp weapon'. The doctor dismissed the suggestion that the deceased had hanged himself because he had no marks around the neck and there was no congestion of the lungs to indicate death by hanging.

Held: (i) The circumstantial evidence irresistably pointed to the appellants as the people who C perforated the deceased's eyes; in doing so they clearly intended, at the very least, to cause him grievous harm;

(ii) If the evidence is so strong against an accused as to leave only a remote possibility in his favour, which can easily be dismissed, the case is proved beyond reasonable doubt.

Case Information

D Appeal allowed.

Case referred to:

1. Miller v. Minister of Pensions [1947] 2 All ER 372.

Mbezi, for the appellants.

E Mwambe, for the Republic.

[zJDz]Judgment

Mnzavas, J.A., read the following considered judgment of the court:

The two appellants, Magendo Paul and Shabani Benjamin, were jointly charged with and convicted of F murder contrary to s 196 of the Penal Code by the High Court, (Maina J), and sentenced to death. Dissatisfied with the findings and the sentence imposed they have appealed to this Court.

The following facts were narrated to the Trial Court:

The appellants were villagers at Sasile Village in Manyeni district and were militiamen in the area. On G 1 July 1990 their village secretary, PW2, ordered them to arrest their fellow villager, one, Bakari s/o Leonard, who was alleged to have raped a woman in the village. They obediently complied and duly arrested the said Bakari s/o Leonard and brought him to the village secretary (PW2), who locked him in the village lock-up. According to the evidence of the village secretary after Bakari was locked up he H told the appellants, and one, Charles Mjelwa, who was also a militiaman (and was one of the accused but met his death in remand prison) to

send Bakari to the Ward Secretary on the following day - 2 July 1990. The village secretary then left for his house leaving the appellants and Charles I guarding the deceased.

1993 TLR p221

MNZAVAS JA

Later while he was in his house the first appellant, Magendo Paul, and one, Robert Noha, came and A asked to go to the lock-up and see what had happened. He accompanied them to the lock-up and on arrival asked the first appellant who was in possession of the key to unlock the lock-up. He did so and on entering the cell he found Bakari hanging by the neck from a piece of cloth tied to a beam of the ceiling. He was already dead. Apparently the cloth used in hanging the deceased was his own B jacket.

The matter was reported to the police and the investigation culminated in the arrest and arraignment of the two appellants and one, Charles Mjelwa, who, as already mentioned above died while in C remand.

In their defence before the High Court both appellants denied killing the deceased and argued that the deceased must have committed suicide by hanging himself.

Before us Mr Mbezi, learned Defence Counsel, submitted that `the learned Trial Judge erred in D disbelieving that the deceased had actually hanged himself'. When the Court posed the question as to who could have perforated the deceased's eyes if the deceased had actually hanged himself. Mr Mbezi argued that after the deceased had hanged himself the dead body fell on the ground and that E the perforation of both eyes may have been caused by sharp objects on the ground. It was further argued that relatives of the woman the deceased was alleged to have raped may have been so angered as to resort to perforating the deceased's eyes after he had hanged himself. F

In the second ground of appeal the learned Defence Counsel submitted that the Trial Judge was wrong in his finding that it were the appellants who killed the deceased as, it was argued, it was clear from the evidence which one of the appellants held the key to the lock-up. G

It was the learned Counsel's submission that any of the militiamen who guarded the deceased could have committed the offence but that it was not clear who, between them, committed the offence. It was argued that this being the position this Court should allow the appeal and acquit the appellants. H

In rebuttal Mr Mwambe, learned State Attorney, supported the conviction and argued that the prosecution relied on the evidence of the doctor, PW1, as to the cause of deceased's death. It was submitted that the contents of the post mortem report as to the cause of death was not disputed by the defence. In support of his argument we were referred to page six of the proceedings. I

1993 TLR p222

MNZAVAS JA

A As for the the argument that the appellants were wrongly convicted or murder because there was no evidence as to who among them held the key to the lock-up the learned State Attorney submitted that the appellants were convicted of murder on circumstantial evidence which was that from 3.30 pm to 4 pm or thereabout, when the deceased met his death he was locked in the village lock-up and B guarded by the appellants and their deceased co-accused,

Charles. That was evidence that they were custodians of the key to the lock-up. It was not disputed that at the time the deceased was put in lock-up his eyes were normal. And last but not least, the deceased was alone in the lock-up.

C On the argument by the defence that relatives of the woman alleged to have been raped by the deceased may have perforated deceased's eyes, Mr Mwambe countered that this could not have been possible and referred the Court to the defence of the first appellant in the High Court on page 17 D of the proceedings in which he said inter alia:

`. . . I knew the woman who alleged that she was raped. I saw her relatives at the scene. I also saw relatives of the E deceased. Those people were saying that we who had arrested the deceased had killed him.'

This being the evidence of the first appellant the argument by the learned Defence Counsel that relatives of the woman the deceased was alleged to have raped may have perforated the deceased's eyes in anger, thereby causing his death, had no leg to stand on.

F The contents of the post mortem report - exh P1 regarding the cause of death which were not disputed by the defence in `the memorandum of matters not in dispute' were that the cause of death was due to `peripheral circulatory failure caused by bleeding and severe pain after perforation of the eyes by a sharp weapon'.

G Elaborating on the post mortem report the doctor, (PW1), said in his evidence inter alia:

`. . . In my opinion there was no evidence that the deceased had died from hanging - what I found around H deceased's neck was a piece of his shirt. That piece of cloth was just placed around the neck to fake hanging. There was no bruise around the neck. If the deceased had hanged himself, there could have been a mark around his neck. . . . The lungs were normal. There was no congestion of the lungs to indicate death by hanging.'

I Taking into account the evidence of the village secretary, (PW2),

that he had ordered the appellants to guard the deceased who had been locked in the cell; his A evidence that he had left the keys to the lock-up with the appellants and that they guarded the deceased from the time he was put in lock-up up to the time he met his death; and the doctor's evidence that the cause of death was due to perforation of the deceased's eyes which led to peripheral circulatory failure as a result of neurologic shock we are far from being persuaded by the B learned Defence Counsel's argument that someone other that the appellants may have perforated the deceased's eyes and thereby caused his death.

We agree with Mr Mbezi's submission that anything is possible but on the facts of this case the C argument that the appellant's both eyes may have been perforated by sharp instruments on the floor after the body had fallen to the ground is, to say the least far-fetched and untenable.

As it was held by Lord Denning in Millier v Minister of Pensions (1): `The law would fail to protect the D community if it admitted fanciful possibilities to deflect the Court of Justices. If the evidence is so strong against a man as to leave only a remote possibility in his favour which can be dismissed with the sentence "of course it is possible but not in the least probable", the case is proved beyond E reasonable doubt.'

In the present case the circumstantial evidence irresistibly pointed to the appellants as the people who perforated the deceased's eyes. In doing so they clearly intended, at the very least, to cause him grievous harm. Their defence that the deceased had hanged himself was a clumsy attempt to F extricate themselves from their criminal acts.

We are satisfied in our own minds that on the evidence the learned Trial Judge was right in convicting the appellants of the offence of murder as charged. We agree with that the learned State G Attorney that the appeal has no merit and we accordingly order that it be dismissed in its entirety.

1993 TLR p224

A

[zRPz]SALIM SUNDERJI AND CAPITAL DEVELOPMENT AUTHORITY v SADRUDIN SHARIFF JAMAL 1993 TLR 224 (CA)

Court Court of Appeal of Tanzania - Dodoma

Judge Mnzavas JA

B CIVIL APPLICATION NO. 10 OF 1993

25 October, 1993

C (From the Decision of the High Court of Tanzania at Dodoma, Maina, J.)

Flynote

Court of Appeal Rules - Notice of Appeal - Service of Notice of Appeal - Proof of service of notice on the Respondent - Rule 77(1) of the Court of Appeal Rules 1979.

D Court of Appeal Rules - Notice of Appeal and letter of application for copy of High Court proceedings - Non-service of Notice of Appeal and copy of application letter: consequences thereof - Rules 77(1) and 83(2) of the Court of Appeal Rules 1979.

-Headnote

E The applicants sought an order striking out a Notice of Appeal filed by the respondent. To support their application they said that the respondent did not serve them with a copy of the Notice of Appeal as required by r. 77(1) of the Court of Appeal Rules 1979 until four months after filing the Notice, and also that the respondent did not serve them with a copy of the letter applying for a copy of the F proceedings in the High Court in terms of r. 83(2) of the Rules. The respondent argued that the Notice of Appeal was served in time but forgot to ask the applicants to sign to acknowledge receipt of the Notice. He also argued that copies of the letter applying for a copy of the High Court proceedings G were sent to the applicants; but there were no signatures acknowledging receipt of copies of the said letter.

Held: (i) The argument that an advocate would, by an oversight, forget to ask the person served with a Notice of Appeal to sign a copy of the document in acknowledgement of receipt is not convincing to the court;

H (ii) Bare assertion by the respondent that he served the applicants with copies of the letter of application for a copy of the proceedings in the High Court without proof of such service cannot be believed by the Court.

(iii) Non-compliance with rr. 77(1) and 83(2) of the Court of Appeal Rules 1979 nullifies a Notice of Appeal or an appeal.

Case Information

I Application allowed; Notice of Appeal struck out

1993 TLR p225

Cases referred to: A

1. D.P. Valambhia v. Transport Equipment Ltd., [1992] TLR 246.
2. Mohamed Raza Azizi & Another v. Akberal Habib Hassamal, CAT - Civil Appeal No. 21 of 1990 (unreported).
3. Grace Frank Ngowi v. Dr. Frank Israel Ngowi, [1984] TLR 120.

Mbezi for the applicants. B

M.N. Marando/Mpoki/Rutagatina for the respondent.

[zJDz]Judgment

Mnzavas, J.A.: In this application the applicants are seeking an order by this Court that the Notice of Appeal filed by the respondent be struck out because some essential step in the proceedings has C not been taken and/or has not been taken within the prescribed time as required by r 77(1) of the Court of Appeal Rules 1979.

Secondly Mr Mbezi, learned Counsel for the applicants, submitted that the respondent did not serve the applicants with a copy for the letter he wrote to the Registrar seeking to be supplied with a copy D of the proceedings of the High Court as stipulated under r 83(2) of the Rules.

Elaborating on the argument that the provisions of r 77(1) of the Court of Appeal Rules were not complied with the learned Counsel told the Court that the respondent filed his Notice of Appeal in E Court on 10 June 1992 and that the Notice of Appeal was served on the applicants on 2 October 1992 and that the Notice of Appeal was served on the applicants on 2 October 1992, about four months from the time it was filed in Court on 10 June 1992. It was submitted that this was contrary to F the provisions of r 77(1) which required the respondent to serve the applicants with the Notice of F Appeal within seven days after the lodging of notice in Court.

As for the provisions of r 83(2) of the Court of Appeal Rules Mr Mbezi argued that the advocate, Mr Marando, who represented the respondent, did not send a copy of the letter he wrote to the Registrar G seeking for copy of proceedings to the applications; and that this omission went counter to the provisions of r 83(2) of the Rules.

The respondent in his counter affidavit argued that he in fact served the respondents with copy of Notice of Appeal but he inadvertently forgot to ask them to affix their signatures on the copies of the H Notice of Appeal. The applicants filed a counter affidavit denying that they were served with copy of the notice.

On the allegation that the respondent did not send to the applicants copy of the letter he wrote to the Registrar seeking for a copy of the proceedings in the High Court the respondent swore a counter I affidavit to the effect that his advocate, Mr Marando, sent him

A many copies of the letter he wrote to the Registrar seeking to be supplied with copy of proceedings in the High Court and that he served the applicants with copies of the letter. Mr Mbezi, learned Counsel for the applicants countered in his affidavit denying `having been served with any copy of Mr Marando's letter as alleged in para 4' of the respondent's counter affidavit and `put Mr B Jamal, the respondent in strict proof thereof'.

Mr Rutagatina who represented Mr Marando for the respondent did not have much to say regarding the applicant's assertion that the provisions of r 77(1) and r 83(2) of the Court of Appeal Rules had C not been complied with by the respondent. In concluding his submission the learned Counsel said: `My Lord if this Court finds that the two essential steps were not taken I pray that the respondent be entitled to reliefs as they stand by the decision of the High Court. We also pray that we be excused from costs.'

D After hearing both parties I am satisfied that there is constraining force in this application. If the respondent's argument as deposed by Mr Mpoki who at one time acted on behalf of Mr Marando for the respondent is to be believed one would have expected him to approach the advocates for the applicants, after he had discovered that they had not signed the notice in acknowledgement of E receipt and ask them to sign them. This, he did not do. Secondly I am not convinced by the argument that an advocate would by an oversight forget to ask the person served with a Notice of Appeal with any other important legal documents of similar nature to sign copy of the document in F acknowledgement of receipt.

On the evidence I agree with the learned Counsel for the applicants that the mandatory provisions of r 77(1) of the Court of Appeal Rules were not complied with.

G Coming to the argument that the respondent did not send copy of his application to the Registrar for copy of proceedings in the High Court to the applicants it is amply clear from the letter Ref MNM/SHARIFF dated 24 September 1992 written by Mr Marando, Counsel for the respondent, to the Registrar asking to be supplied with a copy of proceedings that it was only copied to the respondent, H Shariff Jamal. In the copy sent to Mr Shariff Jamal Mr Marando says to him - `Please follow up'.

The letter does not show that it was copied to the applicants. Nor does it show that Mr Jamal was asked to bring to the notice of applicants the contents of the letter. From the contents of the letter the I words - `Please follow up' merely urged Mr Jamal to follow up the application in the High Court.

Mr Jamal's mere deposition in his counter-affidavit that he received many copies and that he served A some of them to the advocates of the applicants has been denied by the learned Counsels.

This Court will not be entitled to believe the bare assertion by the respondent that he received many copies of the application to the Registrar and that he served the applicants with copies of the B application without proof of such service. There is a long and unbroken chain of

authorities by this Court that non-compliance with the provisions of r 77(1) and r 83(2) of the Court of Appeal Rules nullifies a Notice of Appeal or an appeal. See the decisions of this Court in D P Valambhia v Transport Equipment Ltd (1), Mohamed Raza Azizi and Another v Akberal Habib Hassanal (2) and C Grace Frank Ngowi v Dr Fank Israel Ngowi (3) to mention but only a few of the decisions.

In the event the Notice of Appeal is clearly incompetent as some essential step has not been taken D and/or has not been taken within the prescribed time. The Notice of Appeal is accordingly struck out.

As for Mr Rugagatina's prayer that this Court makes an order that the respondent is entitled to the reliefs as found by the High Court it would be improper for this Court to deal with a matter which is not properly before it.

Mr Rutagatina's prayer that his client be excused from paying costs cannot, with respect, be E entertained. The law is that the party who wins in a suit is entitled to have his costs unless there are exceptional circumstances to the contrary. There are no such exceptional circumstances in this case. F

1993 TLR p228

A

[zRPz]THE MANAGER, NBC, TARIME v ENOCK M. CHACHA 1993 TLR 228 (HC)

Court High Court of Tanzania - Mwanza

Judge Masanche J

B CIVIL APPEAL NO. 22 OF 1993

2 November, 1993

Flynote

C Civil Practice and Procedure - Ex-parte judgment - Grounds for setting aside an ex-parte judgment.

-Headnote

The appellant was sued by the respondent. On the date set for the hearing of the case the appellant did not appear. The Trial District Court, ordered the case to proceed ex parte the following day. The D case proceeded as ordered and judgment was entered for the respondent (plaintiff). The appellant unsuccessfully applied to the Court to set aside the ex-parte judgment and hence this appeal.

Held: The District Court was wrong to refuse to set aside the judgment it gave ex-parte because

E (a) assuming that the respondent was properly allowed to prove his case ex-parte, he did not prove his case on the balance of probability as required by law;

(b) the learned District Magistrate was enjoined to draw issues but in this case no issues were drawn; and

F (c) the central issue in the case, which was special damages, was not addressed.

Case Information

Appeal allowed.

Cases referred to:

1. Jayantilal G. Dave v. Business Machines Ltd., Civil Appeal No. 45 of 1973 (Kenya).
2. Felix M. Shirima v. Mohamed Farahani and another, HC, DSM, Civil Case 23 of 1981 (unreported).
3. Anglo-Cyprian Trade Agencies Ltd. v. Paphos Wine Industries Ltd [1951] 1 All ER 873.

November 2, 1993.

[zJDz]Judgment

Masanche, J.: The appellant, the manager of the National Bank of Commerce was sued by respondent, Enock Chacha in the District Court of Tarime, at Tarime. In short, it is alleged that the respondent had presented a cheque at the bank of the appellant. The cheque was of Shs 200,000/=. That cheque was dishonoured by

the bank. The respondent contended that the cheque was dishonoured wrongly. The respondent therefore sued the bank for this `disgrace.' He asked to be paid damages to the tune of Shs 3,5 million.

The bank did not appear on the date fixed for the hearing of the case. The District Magistrate, Mr Malamsha ordered that the case should proceed to hearing ex-parte, the following day. The hearing was to commence on 27 January 1993. Indeed on that day, the respondent was called upon to adduce evidence. He did so. The learned Magistrate wrote a short judgment. He actually termed it a `ruling'. Judgment was entered for the plaintiff wholly as prayed.

On 18 March 1993, the appellant, through the Tanzania Legal Corporation, applied to have the attachment order which was issued against the bank stayed pending an application to set aside the ex-parte judgment entered on 27 January 1993. The application was granted. But the Court ordered that the bank deposit with the Court some Shs 3 million as security.

The actual application to set aside the ex-parte judgment entered on 27 January 1993 was heard on 24 April 1993. The appellants were not granted the application. They now appeal to this Court.

The respondent, in answer, to this application by the bank, to set aside the ex-parte judgment, informed the Court that the applicants were themselves to blame. He had obtained judgment and he was bound to apply for its execution. He argued that the appellants were late in applying to set aside the ex-parte judgment.

This appeal against the decision of the District Court, refusing to set aside the judgment it gave ex-parte, must be allowed. There are several reasons why this appeal should be allowed.

1. Assuming that the respondent was properly allowed to prove his case ex-parte, he did not prove his case on the balance of probability as required by law. It does not follow that since a party has been allowed to prove his case ex-parte, he can just casually go though his claims, in the hope that the Court will readily grant the prayer. A party who proceeds to prove his case ex-parte must prove his case on the required standard of the law. Where the proof

falls short of the required standard, the court must dismiss the case (see the case of Javantlal G Dave v Business Machines Ltd (1)

2. Corollary to the above, Bahati J, has said this in Felix M Shirima v Mohamed Farahani and Another (2) It is a cardinal principal of law that in civil cases there must be proof on the balance of the probabilities. In this case, it cannot be said I

1993 TLR p230

MASANCHE J

A that the scanty evidence adduced in this Court proves in any way what is alleged in the plaint. There must be proof of the case on the standard by law which is on the balance of the probabilities even when a case proceeds ex-parte like in this case. . . .

(3) The case before the learned District Magistrate was a Civil Case and it was coming for B hearing albeit ex-parte. The learned District Magistrate was enjoined to draw issues. No issues were drawn as far as I can see in this file.

(4) The learned magistrate should have realised that the central issue in the case was special C damages. Special damages, in law need strict proof. As Devlin J said in the case of Anglo-Cyprian Trade Agencies Ltd v Paphos Wine Industries Ltd (3) at page 875:

`There exists an impression that, when pleading special damages, one can plead a certain figure, arrived at in some way, and one can then set up a lower figure in Court and seek to justify it. In my view that is not the proper way to plead special damages . . .'

All these reasons make it necessary for me to allow this appeal. As Mr Gallati has submitted, there is E a triable issue: it is that of special damages. The respondent alleged that because his Shs 200,000/= worth of cheque was not honoured, he has suffered special damages to the tune of Shs 3.5 million. That in itself, should have attracted the learned magistrate to make his discretion in favour of having the whole matter go on full trial.

F Appeal is allowed.

The case is remitted back to the District Court, where it should be heard inter-party. But the hearing inter-party should be before another Magistrate. The order of a deposit of Shs 3 million into Court is also set aside. The bank should have its money back.

G It is so ordered.

1993 TLR p231

A

[zRPz]ALLY JUMA MAWEPA v REPUBLIC 1993 TLR 231 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Ramadhani JJA and Lubuva JJA

CRIMINAL APPEAL NO. 125 OF 1993 B

8 November, 1993

(From the conviction of the High Court of Tanzania at Arusha, Nchalla, J.) C

Flynote

Criminal Practice and Procedure - Assessors - Summing up to the Assessors - Court should not influence Assessors.
-Headnote
The appellant was convicted of murder and sentenced to death after his defences of drunkenness D and provocation were rejected by the Judge sitting with Assessors. The decision of the Court was based entirely on the credibility of the appellant as a witness. On appeal, the appellant's advocate criticised the Trial Judge for making certain comments during the summing up to the Assessors about the credibility of the appellant.
Held: (i) When summing up to the Assessors the Trial Judge should as far as possible desist from E disclosing his own views, or making remarks or comments which might influence the Assessors one way or another in making up their own minds about the issue or issues being left with them for consideration;

(ii) The assessors should be made to give their opinions independently, based on their own F perception and understanding of the case after the summing up; the Judge makes his views known only after receiving the opinions of the assessors and in the course of considering his judgment in the case;

(iii) Even though the Judge committed an error by commenting on the appellant's credibility, this G error did not really affect the opinion of the assessors; had it influenced their opinions, the trial would have been a nullity.
Case Information
Appeal dismissed.
Case referred to: H

1. Tulubuzya Biture v. Republic [1982] TLR 264.

D.N. Kapoor, for the appellant.
Mrs. M. Lyimo, for the Republic.
[zJDz]Judgment
Kisanga, J.A., read the following considered judgment of the Court: I
1993 TLR p232
KISANGA JA
A This appeal arises from the appellant's conviction for murder and the sentence of death passed on him by the High Court (Nchalla J) sitting at Arusha.
The brief facts were that the appellant and the deceased were co-workers at the National Milling Corporation in Arusha. They were both employed there as porters or collies and at the material time B they were also living in the same premises where the appellant had invited the deceased to come and share a room with him. On the material day the appellant attacked the deceased at night, cutting him with an axe twice on the head and killing him instantly. On the following day the appellant told C witnesses that the killed the deceased for stealing his (appellant's) mattress and a bucket some days prior the day of incident.
In his defence at the trial the appellant raised the defences of drunkenness and provocation. However, the Trial Judge sitting with his assessors rejected them and accordingly convicted him for D murder.

Before us the appellant was represented by Mr D N Kapoor, learned Advocate while Mrs M Lyimo, Senior State Attorney, appeared for the respondent Republic. Mr Kapoor filed three grounds of appeal E which he argued together, essentially contending that the defences of drunkenness and provocation were open to the appellant. His contention was strongly resisted by Mrs Lyimo.

As stated earlier the Trial Court duly considered these defences but rejected them; that decision F being based entirely on the credibility of the appellant as a witness. In the morning following the night of the incident the appellant told Joseph Haule (PW2) and Jumanne Kiyemi (PW3) that he had killed the deceased because he (the deceased) had stolen his bucket and a mattress. He duly produced the axe which he used in killing the deceased. Later on the same day he gave a similar account to G the policeman (PW1) who recorded his cautioned statement.

In his defence at the trial, however, the appellant said that he was drunk that night because he had taken lots of drinks. Elaborating on that he stated that on the day of the incident he drank from 6 pm H to 10 pm. He started off with what is popularly known as `moshi' or `gongo'. He consumed three big bottles - orange juice size - of this stuff and then switched over to various other types of drinks. To use his own words:

I `I took three bottles of gongo. Three bottles of the size of an orange juice bottle, that is the big bottles. . . . I also drank `Wanzuki'. . . . I

also drank mbege, whisky, konyagi - every alcohol that you can think of. . . . I drink all these types of pombe every A day.'

Then upon his return home at 10 pm he said he noticed that his property had been stolen. This included his mattress, bedsheet, bucket and utensils, and when he asked the deceased, the B deceased said that he knew nothing about them. In addition the deceased told him not to ask him about the matter and further insulted him, `kuma ya mama yako, mimi sikukuibia vitu vyako'. Whereupon, the appellant says, he became angry, fetched an axe from under the bed and hacked him to death. C

The Trial Court duly considered the appellant's defence but rejected it. The learned Judge and his assessors did not believe that the appellant was drunk or that the deceased insulted him. Mr Kapoor contends that the Trial Court erred and urges us to find that the defences of drunkenness and provocation were open to his client. D

In rejecting the appellant's defence, the Trial Court took into account that on the day following the killing the appellant consistently explained to witnesses his reason for the killing. PW2 and PW3 had each asked the appellant the reason for the killing and the appellant's reply was that he killed the E deceased because he had stolen his property including a mattress and a bucket. Later on the same day the appellant made a detailed cautioned statement to the police officer (PW1) in which he gave the same reason for the killing, adding that the theft leading to this killing had taken place some days back. The appellant did not disclose or suggest to these witnesses that he was drunk or that he was insulted by the deceased. Indeed according to PW2, the appellant told him that when he (the F appellant) asked the deceased about the theft, the

deceased simply laughed. And when PW1 specifically asked the appellant whether he was drunk at the time of the killing he said no, adding that he did not take any pombe that day. G
The Trial Court took the view that if it is true that the appellant was drunk or that the deceased had insulted him, he would have said so at the earliest opportunity when PW1, PW2 and PW3 questioned him about the incident. Since he did not do so but disclosed the defence only during the trial, the Court disbelieved him and found his defence to be an afterthought. In our view that H conclusion was amply supported by the evidence, and we can find no fault with it.
Mr Kapoor also criticised the Trial Judge for making certain comments during the summing up to the assessors about the cred- I
1993 TLR p234
KISANGA JA
A ibility of the appellant. The Trial Judge had remarked that the appellant's allegation that he had mixed all sorts of alcohol; mbege, gongo, whisky, konyagi and several others was a blatant lie. He made similar remarks about the appellant's claim that the deceased had insulted him, which the judge also said was a lie. Again the learned Judge commented on how the appellant in the course of B his defence at the trial prevaricated and indicated the reasons for such prevication by the appellant. For instance the appellant at first stated that the theft of his property had taken place a week before the killing but that on realizing that such evidence was dangerous he quickly changed and said that it C had occurred on the day of the killing.
Mr Kapoor vigorously submitted that such remarks amounted to a misdirection in that the Trial Judge had, in effect, made up the mind for the assessors that the appellant had told lies. Counsel went D further and submitted that such misdirection also, in effect, meant that the learned Judge tried the issues of drunkenness and provocation without the aid of the assessors. But the principle long established by this Court is that where the Trial Judge proceeded to consider and reject the E appellant's defence without the aid of assessors, then the appellant's conviction is a nullity. See for instance the case of Tulubuzya Biture v Republic (1). Accordingly Mr Kapoor urged us to declare the conviction of his client a nullity.
We have given due consideration to Mr Kapoor's submission. It seems however, that there is a F certain amount of misunderstanding here. Admittedly, the Trial Judge, in his summing up, did make remarks about the appellant's credibility to the effect that the appellant told lies. But he did not direct the assessors to reject or not to consider the appellant's defences of drunkenness and provocation. It cannot be said that the Trial Judge failed to leave those defences with the assessors for their consideration. Indeed a perusal of his summing up clearly shows that he expressly left those matters G to the assessors. This is born out by the last two paragraphs of his summing up in which after reviewing the evidence and explaining the defence of provocation, he said:
H `Considering the above evidence, gentleman assessors, whether the malice aforethought has been proved on the accused in the light of the various circumstances which I have given and explained to you from which malice aforethought can be inferred. Also consider whether the accused killed accidentally. Or whether he killed under I provocation. Or he killed under intoxication.

1993 TLR p235
KISANGA JA

I have said about that the element of accident is ruled out, as the accused himself also has not pursued it in his A defence at the trial. Then consider the element of intoxication. Has the accused drunk when he committed this offence? Is the accused's evidence on that fact believable: if you think and believe that the accused killed under intoxication then the provisions of s 14 of the Penal Code, cap. 16 will apply to him. Firstly you will have to say B whether the accused was so drunk that he did not know what he was doing, or if he did then he did not appreciate the results of his act. This means the accused will be treated like a person who kills while insane. Secondly, you will have to say whether due to intoxication the accused could not form the specific intention for the commission of C murder, in which case the accused will be found guilty of the lesser offence of manslaughter.

And the defence of provocation if successfully pleaded and proved, then the same reduces the offence of murder to that of manslaughter.' D

Thus it is important to distinguish between commenting on the appellant's credibility on the one hand, and on the other withdrawing the appellant's defence from consideration by the assessors or failing to leave such defence with the assessors for their consideration. All that the learned Trial Judge did E in his summing up to the assessors in this case was to comment on the appellant's credibility when he said that he (the appellant) had said was a lie. That did not amount to withdrawing the appellant's defences from consideration by the assessors, and upon reading the above quoted extract from the summing up, there can be no doubt whatsoever that the learned Judge did leave the defences of F drunkenness and provocation to the assessors for their consideration. Therefore, the question of nullifying the appellant's convictions as raised and canvassed by Mr Kapoor does not arise.

Before taking our leave of the matter we find it necessary to say a few words for the benefit of those G who preside over trials with the aid of assessors. Our observation relates to the aspect where the Judge expresses or arises his own views when summing up to the assessors. Where this happens, as indeed in the present case, we think that it can influence the assessors in making up their own H minds on the issue, or issues being left with them for consideration. For in practice assessors have high regard and respect for the Judge and his opinion because the Judge is a learned and experienced man in legal matters and also in human affairs. As such one would rarely expect assessors to come up with an opinion different from that expressed by the Judge on a particular matter. I

1993 TLR p236
KISANGA JA

A On that account it is considered appropriate that when summing up to assessors the Trial Judge should as far as possible desist from disclosing his own views, or making remarks or comments which might influence the assessors one way or the other in making up their own minds about the issue or issues being left with them for consideration. The summing up should be unbiased and B impartial such that it leaves the assessors to make up their own minds independently. For instance where, as in this case, the accused had given conflicting accounts of

the circumstances surrounding the killing, the Trial Judge should sum up and explain the conflicting accounts to the assessors without showing his own opinion or inclination one way or other; to make known his own views, as he C did, as this stage would be going too far. He should then ask the assessors to decide whether or not in the light of the conflicting accounts, and considering all the circumstances the accused could be believed and if so which account was or was likely to be true. The assessors should be made to give their opinions independently, based on their own perception and understanding of the case after D the summing up. The Judge makes his own views known only after receiving the opinions of the assessors and in the course of considering his judgment in the case.

E Now the pertinent question which arises is if the Trial Judge properly directed the assessors without commenting in the manner he did on the appellant's credibility, the assessors would have come to a different conclusion ie that the appellant was drunk and that he was provoked by insults F uttered by the deceased at the time of the killing. We are firmly of the view that having regarding to the material on the record the assessors would have come to the same conclusion as they did. For even on a cursory glance at the evidence on record, it is evident that what the appellant stated in Court as his defence was demonstrably false. Therefore the error committed by the learned Judge G did not really affect the opinion of the assessors. However, it is necessary to emphasize the need to adhere to the practice as stated above, for failure to do so may in a proper case result in declaring the trial a nullity on appeal.

In the result we can find no justification for interfering with the appellant's conviction for murder. That H conviction is upheld and, therefore, the appeal fails and is dismissed in its entirety.

1993 TLR p237

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[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v SABINIS INYASI TESHA AND RAPHAEL J. TESHA 1993 TLR 237 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Ramadhani JJA and Mfalila JJA

CRIMINAL APPEAL NO. 127 OF 1993 B

8 November, 1998

(From the acquittal by the High Court of Tanzania at Arusha, Nchalla, J.) C

Flynote

Criminal Practice and Procedure - Appeals - Appeals against Interlocutory Orders - Whether appellable by the Director of Public Prosecutions - Appellate Jurisdiction Act 1979, s 6(2). D

Criminal Practice and Procedure - Incomplete trial within a trial Whether Court can make a ruling on it.

Natural Justice - The right to be head in criminal trials - The right of the prosecution to be heard.

-Headnote

The appellant was aggrieved by the ruling of the Trial Court that the respondents had no case to E answer to the charge of manslaughter. Three grounds of appeal were advanced: firstly, refusal of the Judge to admit extra-judicial statements of both respondents and the cautioned statement of the first respondent; secondly, refusal to give the appellant right to reply to objections by the respondents' advocate; and lastly, the ruling of no prima facie case. F

Held: (i) Since the Justice of the Peace was the only witness in the trial within a trial, and his testimony was not controverted even by the respondents, and since the Trial Judge rejected his evidence, the trial within a trial was incomplete; therefore, the Judge erred in making a G ruling on it;

(ii) It is a cardinal principle of natural justice that a party should not be condemned unheard; the appellant was not given an opportunity to respond to the allegation that the cautioned statement made by one of the respondents was illegally obtained;

(iii) Failure to conduct a second trial within a trial was a fundamental error; H

(iv) The D.P.P has the right to appeal against an interlocutory order in criminal proceedings; it is only the accused person who does not have such a right.

Case Information

Appeal allowed. The proceedings are quashed and a retrial ordered before another Judge. I

1993 TLR p238

A Cases referred to:

1. General Medical Council v Spackman [1943] AC 627.

2. Hypolito Cassiano De Souza v Chairman and Members of the Tanga Town Council [1961] EA 377.

3. Alois Kula and Another v Republic, Criminal Appeal No. 120 of 1990 (unreported).

B J. Mono, for the appellant.

C.J. Maruma, for the respondents.

[zJDz]Judgment

C Ramadhani, J.A., read the following considered judgment of the Court:

The High Court of Tanzania at Arusha (Nchalla J), on 4 November 1992, made a ruling that the two respondents, Sabinis Inyasi Tesha and Raphael Jacob Tesha, had no case to answer. Thus they were acquitted of the charge of manslaughter c/s 195 of the Penal Code.

D That ruling aggrieved the Republic and so the Director of Public Prosecutions has come up with this appeal. At the hearing Mr Mono, the learned Principal State Attorney, appeared on behalf of the appellant Republic, while Mr Maruma learned Counsel, represented both respondents, just as he had done at the trial.

E Mr Mono filed three grounds of appeal. First he attacked the refusal of the learned Trial Judge to admit as evidence the extra-judicial statements of both respondents and the cautioned statement of the first respondent. Secondly, Mr Mono said that Nchalla J erred when he refused to give DPP the F right to reply to the objections of Mr Maruma to the production of the cautioned statement of the first respondent. Lastly it was submitted that the ruling of no prima

facie case was wrong since the evidence of the remaining prosecution witness PW1 was sufficient to make out a case for the respondents to answer.

G In the course of hearing the appeal, four fundamental omissions vividly stood out, and Mr Maruma was very quick to admit them when he came to address the Court. We intend to dispose of this appeal in those four errors.

H Firstly, the record is patently clear that the trial within a trial that was conducted was incomplete and yet the learned Trial Judge made a ruling on it. Secondly, the DPP was denied his right of reply after the defence made its objection. Thirdly a second trial within a trial was not held while it ought to have been conducted. Lastly the DPP was denied a stay of proceedings he requested so that he I could appeal against the rejection of the cautioned statement of the first respondent.

1993 TLR p239

RAMADHANI JA

Both respondents recorded extra-judicial statements before a Justice of the Peace (PW3). When A these statements were about to be tendered as exhibits, Mr Maruma objected. So a trial within a trial was held. PW3 became the first prosecution witness in the trial within a trial. In fact PW3 was the only witness. After examination-in-chief, cross-examination and re-examination the learned Trial B Judge went on to make his ruling rejecting both statements. What the Justice of the Peace deposed was not controverted even by the respondents. We just wonder on what other evidence did the learned Judge reject that of the Justice of the Peace. This is why we say that the trial within a trial was incomplete. C

The first respondent had also recorded a cautioned statement before PW4 and when that was about to be tendered, the defence objected alleging that s 53 to s 58 of the Criminal Procedure Act 1985 had not been complied with. After that address by Mr Haruma, the learned Judge made his ruling D rejecting the cautioned statement for failure to comply with the mandatory provisions of the Criminal Procedure Act.

Mr Mono is recorded to have said:

`I have not been given opportunity to reply to the objection by my learned friend on the admissibility of the statement which PW4 recorded from first accused. For that reason I apply to appeal against the ruling. The proceedings be E stayed.'

Thus Mr Mono registered two points. Firstly he pointed out that he was denied his right of reply. Secondly he wanted to exercise his right of appeal and so asked for the proceedings to be stayed. F

We shall deal with the first point first. With respect, the learned Judge erred. It is a cardinal principle of natural justice that a party should not be condemned unheard. In the issue of objecting to the admission of the cautioned statement, tables were turned; Mr Maruma was the prosecutor accusing G Mr Mono of producing a document which had been illegally obtained. Mr Mono had to defend the Republic against that allegation but was not given opportunity.

Lord Wright had this to say in General Medical Council v Spackman (1), at 644: H

`If principles of natural justice are violated in respect of any decision, it is indeed immaterial whether the same decision would have been arrived at in the absence of the

departure from the essential principles of justice. That decision must be declared to be no decision.' I

1993 TLR p240

RAMADHANI JA

A That was quoted with approval by the Court of Appeal for Eastern Africa in De Souza v Tanga Town Council (2) at 388. We think it is a sound principle.

However, in the present case, `in the absence of the departure' from that rule of natural justice, B namely the right to be heard, the learned Judge would not have arrived at the same decision. More likely he would have ordered a trial within a trial which is the test a statement has to pass before it is admitted as evidence. So the departure here is even more offensive. This is the third fundamental error: the failure to conduct a second trial within a trial.

C To go back to the second point of Mr Mono, that is, his request for staying the proceedings so that he could appeal, the learned Judge responded with the following order:

`As the ruling is on an interlocutory point I rule out the application to stay the proceedings. I order accordingly.'

D Mr Mono complied in the only way open to him: `In that case my Lord, I close the Prosecution case.' That, of course paved the way for the ruling of no case to answer which gave birth to this appeal.

E At the appeal Mr Mono submitted that the learned Judge erred in his opinion that an interlocutory order in criminal proceedings is not appealable by the DPP. He relied on our decision in Alois Kula v Republic (3). The learned Principal State Attorney said that the DPP has a right of appeal even against such orders. With respect, that is so. In Alois Kula (3) we were just interpreting the F provisions of s 6(2) of the Appellate Jurisdiction Act 1979 which says:

`(2) Where the Director of Public Prosecutions is dissatisfied with any acquittal, sentence or order made or passed by the High Court or by a subordinate court exercising extended powers he may appeal to the Court of Appeal G against the acquittal, sentence or order, as the case may be, on any ground of appeal.'

Here the DPP wanted to appeal against the order of the learned Judge in rejecting the cautioned H statement of the first respondent. That order was appealable by the DPP. It is only the accused person who does not have a right of appeal against an interlocutory order in criminal proceedings. That is what we decided in Alois Kula (3).

The learned Judge certainly had his reasons, rightly or wrongly, in conducting the proceedings in the way he did, however, the four errors pointed out are uncomfortably glaring. Justice must be seen to I be done both to the accused person as well as to the prosecution.

1993 TLR p241

Here it cannot be said to have been so on the part of the Republic. A

As Mr Mono prayed the only remedy is to direct a new trial. The proceedings are quashed and a retrial by conducted by another Judge. It is so ordered.

The appeal is allowed. B

1993 TLR p241

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[zRPz]GODSON HEMEDI v REPUBLIC 1993 TLR 241 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Ramadhani JJA and Lubuva JJA

CRIMINAL APPEAL NO. 114 OF 1993 D
8 November, 1993
(From the conviction of the High Court of Tanzania at Same, Kannonyele, PRM, Ext. Jur.) E
Flynote
Evidence - Alibi - Supported by witnesses of both defence and prosecution - Rejected - Whether properly rejected. F
Evidence - Dying declaration - Corroboration - Corroborative evidence weak and bearing unsatisfactory features - Whether can corroborate.
-Headnote
The appellant was charged with and convicted of murder, and sentenced to death. His conviction G was based on the dying declaration of the deceased who consistently mentioned him as her assaillant. The Trial Judge was satisfied that the dying declaration was sufficiently corroborated by the evidence of PW1. During the trial the appellant had raised the defence of alibi which the learned Trial Judge rejected.
On appeal the decision of the Trial Judge was challenged on two grounds: firstly that the dying H declaration was uncorroborated and secondly that the appellant's defence of alibi was wrongly rejected.
Held: (i) The dying declaration of the deceased and the evidence of PW1 involve weakness and unsatisfactory features which sufficiently render such declaration unreliable and make PW1's evidence incapable of supplying the necessary corroboration to it; I
1993 TLR p242
A (ii) In the light of the weakness of the prosecution case the appellant's alibi supported by his own witness and that of the prosecution was wrongly rejected.
Case Information
Appeal allowed.
No case referred to:
B Mchami, for the appellant.
Mrs. M. Lyimo, for the respondent.
[zJDz]Judgment
C Kisanga, J.A., delivered the following considered judgment of the Court.
The appellant was convicted of murder contrary to s 196 of the Penal Code and sentenced to death by the High Court (Kannonvale PRM Extended Jurisdiction) sitting at same. He has now appealed against both conviction and sentence. In this Court he is represented by Mr Mchami, learned D advocate while the respondent Republic is represented by Mrs M Lyimo, learned Senior State Attorney.

The facts of the case are short although not simple. On the day of the incident the deceased, an old E lady and her husband (PW1) were at their home talking to their visitor (PW2) who had just arrived. Both the husband (PW1) and the visitor (PW2 were inside the house while the deceased was outside. The time was about 4 pm.

F While the conversation between the three was going on, the deceased was suddenly attacked. She sustained a cut wound on her left loin causing haemorrhagic shock ultimately leading to her death only shortly afterwards. The Prosecution's case was that it is the appellant who inflicted the cut wound which caused the death of the deceased.

G The appellant denied the charge and put up an alibi.

The appellant's conviction was based on a dying declaration of the deceased which the Trial Court found to be sufficiently corroborated. However Mr Mchami for the appellant has submitted that the said dying declaration was uncorroborated and that the appellant's defence of alibi was wrongly H rejected.

PW1 and PW2 testified that during the conversation while the two of them were seated inside and the deceased outside the house the deceased was suddenly attacked following which she cried out loudly and mentioned the appellant, her nephew, as her assailant. Both witnesses say they went out I immediately and saw the deceased at a distance running away. PW1 added that he saw the appellant

about fifteen paces away entering his house and holding a panga. PW3, the deceased's sister and A mother of the appellant testified that on hearing the alarm coming from the deceased's house which was about twenty paces away she went out and found the deceased who had sustained a cut wound and who told her that the appellant had cut her with a panga. The deceased repeated this to the B policeman (PW4) who visited her at the hospital and recorded her statement.

That is essentially what constituted the prosecution case against the appellant. However it seems that there is substance in Mr Mohami's submission that the conviction is unsupportable. We think that there are gaps or unsatisfactory features in the evidence which tend to render the deceased's C dying declaration unreliable.

According to the policeman (PW4) and the post mortem examination report, it would appear that the deceased was attacked from the back while facing in the direction of and talking to PW1 and PW2 who were seated inside the house. PW4 said that the deceased told him that upon her attack she D turned and saw the appellant disappearing. That is to say, she only saw the assailant from the back. The question is whether in the circumstances of this case the deceased correctly identified her assailant. It is conceded that the appellant was well known to the deceased prior to the day of the E incident and that the incident itself took place during day-light at about 4 pm. But the attack on the deceased which was sudden and from the back must have caused her great shock, fear and confusion. In such a state of great shock, fear and confusion we think that the deceased's identification of her assailant who was running away and whom she could only see from the back F cannot be all that reliable.

There was evidence that the deceased was aware of some rumours in the village that the appellant had alleged that the deceased practiced witchcraft on him. That may well have influenced the G deceased in coming to a wrong conclusion that she saw and identified the appellant as her assailant who had come to settle scores with her.

The evidence of PW1 which according to the Trial Court corroborated the dying declaration, leaves much to be desired. The witness stated that following the loud cry by the deceased that the appellant H had cut her with a panga he and his visitor (PW2) immediately went out of the house. He saw the deceased at a distance running away and also the appellant entering his house carrying a panga. However PW2 who confirms that he came out immediately following the deceased's cry, did not see the appellant around. Like PW1 he saw the deceased at some distance running away but to use his I own words:

1993 TLR p244

KISANGA JA

A `I had not seen the attacker that day nor did I see any other person outside there other than the attacked woman.'

Now if PW1 claims to have seen the appellant entering his house while carrying a panga, why was the appellant not also seen by PW2 who observed the incident from the same vantage point? B According to PW2, PW1 did not tell him that he saw the deceased's attacker. The question is: since both witnesses were together, why did PW1 not point out to PW2 that he had spotted the culprit?

According to PW1 he followed the direction taken by the deceased until he reached the police station C and on his return home the children told him that they saw the appellant going away from his house. None of these children was called to testify on this point which was of crucial importance in assessing the veracity and accuracy of PW1 as a witness. The question is: why were these children D not called? And if they were called can one say that they would necessarily support the claim that the appellant went out of his house so soon after the attack on the deceased?

There is no evidence as to whether or not the appellant's house was searched for the panga (the E murder weapon) which PW1 allegedly saw the appellant taking into the house. The panga was obviously relevant because it might have had blood stains which would provide a strong link between the appellant and the attack on the deceased. Then the question is: if the appellant's house was not searched for the panga why was this? And if a search was conducted but no panga was found in the F house, what value can one put on PW1's evidence that he saw the appellant entering his house with a panga?

Then there was evidence that after a while the appellant returned to his house and that PW1 on G seeing him, sent for the police who came to arrest him. The question is: if the appellant had gone out in the first instance what should make him return to the place so soon afterwards? Since the deceased cried out loudly mentioning the appellant as the assailant, the appellant clearly knew that he was then a wanted man. Now if he had managed to escape arrest in the first instance why should H he bring himself back to the obvious danger?

These are some of the matters which in our view increasingly render the evidence of PW1 unreliable. In holding this view we take into account that PW1 is an old man of about seventy years who admitted having poor eye-sight. Although he claimed that this weakness is limited only to his I ability to read, we think that he

1993 TLR p245

KISANGA JA

was merely trying to play down the problem, having regard to the evidence of PW2 to the effect that A he saw no one else around except the appellant who was running away. We also bear in mind that PW2, being the husband of the deceased, may have exaggerated his evidence. Upon hearing the deceased mentioning the appellant as her assailant, he might have been tempted to embellish his B story by claiming that he actually saw the appellant in order to make it more easily acceptable and hence to ensure that the culprit has been found.

At the commencement of the trial the appellant in terms of 194(4) of the Criminal Procedure Act gave notice of an intended alibi. Consistent with such notice he stated in his defence that on the day of the C incident he and his brother had left their village in the morning for another village, some distance away, called Vujo where they carried on the business of burning charcoal and they did not return home until around 7 pm. The alibi was only supported by his own brother and witness (DW2) and D also by his mother who had given evidence for the prosecution (PW3). Her evidence was to the effect that on the material day the appellant and his brother (DW2) had left home in the morning for charcoal burning business and that she did not see them again for the rest of that day. In the light of E the weaknesses in the prosecution case as pointed out above we think that the appellant's alibi supported as it was by his own witness and that of the prosecution was wrongly rejected.

In upholding Mr Mchami's submission, we find that the dying declaration of the deceased and the F evidence of PW1 involve weaknesses and unsatisfactory features which sufficiently render such declaration unreliable and make PW1's evidence incapable of supplying the necessary corroboration to it. In the result the appeal is allowed. The conviction is quashed and sentence set aside. The appellant is to be set free forthwith unless he is otherwise lawfully held in custody. G

1993 TLR p246

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[zRPz]HILDA ABEL v REPUBLIC 1993 TLR 246 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Ramadhani JJA and Lubuva JJA

B CRIMINAL APPEAL NO. 119 OF 1993

8 November, 1993

(From the conviction and sentence of the High Court of Tanzania at Moshi, Mroso, J.)

Flynote

C Criminal Law - Murder - Defence of insanity - Person suffering from defective reasoning due to delusion but capable of understanding what she was doing - Whether defence of insanity applies - Penal Code, s 13.

D Evidence - Expert evidence - Evidence by medical expert - Whether courts are bound by such testimony.

-Headnote

The appellant was convicted of murder and sentenced to death. At her trial, she raised the defence E of insanity. The doctor who examined her reported that she was insane at the time of the alleged murder as she was suffering from defective reasoning due to delusion of thought and imperative hallucination. After analysing and evaluating the evidence and directing himself on the cautioned statement of the appellant in which she admitted killing the deceased and gave a detailed account of F the incident, the Trial Judge held that though the appellant was mentally disturbed at the time, she was sane within the meaning of s 13 of the Penal Code. The appellant appealed.

Held: (i) Insanity within the context of section 13 of the Penal Code is a question of fact which could be inferred from the circumstances of the case and the conduct of the person at the material time;

G (ii) Courts are not bound to accept medical expert's evidence if there are good reasons for not doing so;

(iii) As the law now stands in Tanzania, though the appellant may well have been under diminished responsibility, no destruction could be made in terms of criminal responsibility; there is need to update the law in this field.

Case Information

H Appeal dismissed.

Case referred to:

1. Agnes Doris Liundi v Republic [1980] TLR 46.

I L. Ojare, for the appellant.

Mrs. Lyimo, for the respondent.

1993 TLR p247

[zJDz]Judgment

Lubuva, J.A., read the following considered judgment of the Court: A

The appellant was charged with and convicted of murder contrary to s 196 of the Penal Code. She was sentenced to death by the High Court (Mroso J) sitting at Moshi and is now appealing against both conviction and sentence. Before this Court the appellant was represented by Mr Loomu Ojare B learned Advocate and Mrs Mary Lyimo learned Senior State Attorney appeared for the respondent Republic.

The facts are simple and are not in dispute. They may briefly be summarised as follows: The victim of the tragic death was a three and a half year old boy, one Bethlehem John. On the fateful day, (5 C May 1985) while the parents of the deceased John Urio (PW2) and Advesta w/o John (PW3) were away the appellant came with a bill-hook hidden in her clothes with which she (appellant) hacked the deceased to death. The deceased was then in the company of

his elder sisters Judica John (PW6), D Doreen and Regina. Deceased was the youngest of them all. Immediately after the tragic incident the appellant went to her father's house in the neighbourhood where she cleaned and hid the bill-hook, the weapon used in the murder. Thereafter she went to hide herself at the house of her E aunt in Kondeni Village nearby from where she was arrested the following day. Two days after the incident, the appellant made a cautioned statement in which she admitted having killed the deceased in revenge against Advesta John (PW3) the deceased's mother. In the cautioned statement the appellant gave a detailed clear account of the entire sequence of the incident. The statement was F admitted in evidence at the trial (exh P1).

At the trial, the appellant denied her involvement in the offence. As the main line of defence was insanity, the appellant was committed to Isanga Institution for examination in order to determine G whether she was mentally sound at the time of committing the offence. Dr Ngonyani, the Specialist Psychiatrist at Isanga Institution, Dodoma duly reported on the appellant's condition. It was the opinion of the doctor that the appellant was insane at the time of the alleged murder. According to the doctor the appellant was suffering from defective reasoning due to delusion of thought and imperative H auditory hallucination. The learned Trial Judge having analysed and evaluated the evidence and directing himself on the cautioned statement as well as the defence of insanity raised held that though the appellant was mentally disturbed at the time, still she was sane within the meaning of s 13 of the Penal Code. At the I

1993 TLR p248

LUBUVA JA

A hearing of this appeal the appellant through the learned Advocate Mr Loomu Ojare, essentially raised one ground of appeal. He complained that the learned Trial Judge erred in law and fact in not holding that the appellant was entitled to the defence of insanity. Mr Loomu Ojare strongly urged that B in the first place, from the initial stages there was evidence (PF 3 at Mawenzi hospital) to show that the appellant was mentally ill. Secondly, the Isanga Institution's psychiatrist report on her mental condition at the material time showed that she was insane at the time the offence is alleged to have been committed. It was his submission that the Trial Court should have accepted the defence of C insanity. It was, the learned Advocate further argued that at the time when the appellant committed the offence she knew what she was doing but did not know that it was wrong. In support of this argument, the learned Advocate relied on the provisions of s 13 of the Penal Code Chapter 16 of the D Laws of Tanzania wherein it is provided that:

> `A person is not criminally responsible for an act or omission if at the time of doing the act or making the omission he is through any disease affecting his mind incapable of understanding what he is doing, or of knowing that he E ought not to do the act or make the omission.'

It was the learned Advocate's complaint that the learned Trial Judge did not address himself on the aspect of insanity touching on whether the appellant knew that she ought not to do what she was F doing. The Trial Court merely concerned itself with the issue of whether the appellant knew what she was doing the learned Advocate further complained. This, the learned advocate

submitted was a narrow and restrictive approach on the question of insanity because an insane person suffering from G some hallucination may well carry out murderous acts but may not know such acts are wrongful.

For the Respondent Republic Mrs Mary Lyimo learned Senior State Attorney supported the conviction and urged that the appeal be dismissed. It was Mrs Lyimo's contention that the Trial Court while accepting the Psychiatrist's report on the mental condition of the appellant at the material time H correctly held that though she was suffering from defective reasoning due to delusion, still she was sane and therefore was properly convicted upon the evidence available. The learned Senior State Attorney further submitted that the conduct of the appellant immediately before and after the incident indicates that she knew what she was doing. For instance, the appellant came to the scene of I murder hiding the bill-hook. Further-

more, Mrs Lyimo submitted that after commission of the act she returned to her father's house A where she cleaned the bill-hook and hid it. She (appellant) then went to hide at the house of her aunt at Kondeni from where she was arrested. Mrs Lyimo finally argued that in the cautioned statement which was taken two days after the incident, the appellant gives a detailed account of all that had happened giving reasons why she had set about killing the deceased. All these Mrs Lyimo, learned B Senior State Attorney urged was clear testimony of the fact that the appellant was legally capable of appreciating the nature of her action at the time. The conviction was, according to Mrs Lyimo properly founded. C

We have given due consideration to the submissions of both learned Counsel for the appellant and respondent Republic respectively. With respect, we are unable to agree with the submission by the learned Advocate Mr Loomu Ojare for the appellant that the Trial Court should have upheld the D defence of insanity. The evidence as believed and accepted by the Trial Court was such that the appellant was at the time not insane within the context of s 13 of the Penal Code. She knew what she was doing. This is a question of fact which could be inferred from the circumstances of the case and the conduct of the appellant at the material time. There was ample evidence to show that the E appellant came with a bill-hook hidden in her clothes; the appellant's quick retreat to her father's house with the bill-hook soon after the commission of the offence, the cleaning of the bill-hook and the subsequent hiding of it followed by her hiding at the house of her aunt at Kondeni until the time of F her arrest. All this goes to show that the appellant knew and understood the nature of what she had done and the consequences of such an act. We are of the view that the totality of evidence is such that the Trial Judge correctly concluded that the appellant knew as well that it was wrong for her to do the act. On the point the learned Trial Judge can hardly be faulted. Apart from the conduct of the G appellant immediately before and after the incident there was the evidence of the cautioned statement which was admitted at the trial (exh P1). Though at the trial there was an attempt by the appellant to repudiate the cautioned statement, it was nevertheless properly admitted as there was H sufficient and independent evidence to support and corroborate it. In the statement, the appellant quite clearly states that she had killed the deceased as a revenge against Advesta the

deceased's mother (PW3) on suspicion of witchcraft. It is therefore quite clear that on the basis of the cautioned statement in which the appellant sets out in detail the motive behind the murder of the I

1993 TLR p250

LUBUVA JA

A deceased as well as the conduct of the appellant immediately prior and after the incident the Trial Judge concluded that the appellant was sane at the time of the commission of the offence. We are satisfied that the learned Judge sufficiently analysed and addressed himself on the law and evidence relating to the defence of insanity when he concluded by saying `all this suggests that she must have B known that what she did was wrong'. We can find no ground for the submission by Mr Loomu Ojare learned Advocate for the appellant that the Trial Judge did not address himself on the aspect whether the appellant knew that she was doing wrong.

C Finally we would wish to make an observation on medical expert's evidence. This point was touched upon by Mrs Lyimo the learned Senior State Attorney at the hearing of this appeal. She stated that the medical expert's report is not binding on the Court and so it's acceptability or D otherwise depends on the circumstances of the case. In the instant case, the Trial Judge while accepting the psychiatrist's report as to the mental condition of the appellant at the time of the incident, he came to the conclusion that she was nevertheless sane. The difference lies in the conclusion arrived at. On the basis of this it is imperative to restate the legal position that the courts are not bound to accept a medical expert's evidence if there are good reasons for not doing so. We E respectively uphold Mrs Lyimo's submission on this point.

As regards the status of the law in Tanzania in connection with diminished responsibility and insanity, F this Court has had occasion to make some remarks on the matter in the case of Agnes Doris Liundi v Republic (1) where we observed that there is the need to have the law updated in this field. In this case the learned trial Judge has come to the conclusion that though the appellant may well have been under diminished responsibility still the law being what it is, no distinction could be made G in terms of criminal responsibility. With respect, we are in agreement with the views expressed by the learned Trial Judge on this point. Once again we would draw the attention of the authorities concerned to the need to take appropriate legislative measures to amend the law in order to conform with current needs as intimated.

H In the result we are satisfied that the Trial Court properly analysed and evaluated the evidence of both the Prosecution and the Defence on the issue of insanity and came to the right conclusion. The appellant's conviction was well founded. We find no reason to interfere. Accordingly the appeal is I dismissed in its entirety.

1993 TLR p251

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[zRPz]MICHAEL MAPUNDA v REPUBLIC 1993 TLR 251 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Ramadhani JJA and Lubuva JJA

CRIMINAL APPEAL NO. 118 OF 1993 B
8 November, 1993
(From the conviction of the High Court of Tanzaniaat Arusha, Mushi, J.) C
Flynote
Criminal Practice and Procedure - Sentencing - Minimum Sentence for corrupt transactions - Sections 5(d) and 4(a) of the Minimum Sentences Act, 1972.
-Headnote
The appellant was convicted by the Resident Magistrate's Court of soliciting and receiving a bribe of D Shs 1,000/= contrary to s 3(1) of the Prevention of Corruption Act, 1971, and sentenced to five years imprisonment. His conviction and sentence were upheld by the High Court. He appealed further.
Held: The minimum sentence for corrupt transactions under s 4(a) of the Minimum Sentences Act, E 1972, where the amount of money involved does not exceed Shs 5,000/= is three years imprisonment.
Case Information
Appeal against conviction dismissed.
Sentence reduced to three years.
No cases referred to. F
J. Mono, for the Republic.
[zJDz]Judgment
Ramadhani, J.A., read the following considered judgment of the Court: G
The appellant, Michael Mapunda was an inspector with the Municipal Council of Arusha. He was convicted by the Resident Magistrate's Court of Arusha of two counts of corrupt transactions c/s 3(1) H of the Prevention of Corruption Act, 1971. The learned Resident Magistrate found that the appellant solicited and did receive a bribe of Shs 1,000/=. He was given a custodial sentence of five years for each count to run concurrently. His appeal to the High Court of Tanzania at Arusha (Mushi J) was dismissed in its entirety. This is, therefore, his second appeal. I
1993 TLR p252
RAMADHANI JA
A The appellant, just as before the two lower courts, appeared in person while the respondent Republic was represented by Mr Mono, Principal State Attorney. The only point of law in this appeal is the legality of the sentence.
The learned Resident Magistrate in passing the sentence said:
B `Accused is sentenced to serve the statutory sentence of five years on each count . . .'.
He was not mindful of citing the relevant section he relied upon for `the statutory sentence'. C Unfortunately, the High Court, too, did not address itself to the sentence. The learned Judge reviewed the evidence, found the conviction above-board and, without a word on the sentence, dismissed the appeal though severity of the sentence was ground ten of the appeal.

D Section 56(1) of the Economic and Organized Crime Control Act 13 of 1984 provides that all offences contained in the First Schedule to that Act are economic offences. Bribery and Corruption under the Prevention of Corruption Act 16 of 1991 are mentioned in item 2 of that First Schedule. So the appellant has been convicted of economic offences the maximum punishment of which is fixed E by s 59(2) of Act 13 of 1984 to be fifteen years. The minimum punishments for such offences are contained in the Minimum Sentences Act 1 of 1972. Where the amount of money involved is over Shs 5,000/=, s 5(d) of that Act prescribes a minimum term of imprisonment for five years. That is F probably what the learned Resident Magistrate termed `the statutory sentence of five years'. However, that prescription does not apply to the appellant since the amount he obtained was just Shs 1,000/=. He falls under the provisions of s 4(a) of the Minimum Sentences Act which says:

G `4. Where any person is, after the date on which this Act comes into operation, convicted by a court of a schedules offence, whether that offence was committed before or after such date, the court shall sentence such person to a term of imprisonment which shall not be less than -

H (a) where the offence is an offence specified in the First Schedule to this Act, three years;'

Now, the two counts under s 3 of the Prevention of Corruption Act, 1971 of which the appellant has I been convicted are in item 8 of the First Schedule of the Minimum Sentences Act, 1972. That is

why we have said that the appellant falls under s 4(a) of the latter Act. The minimum sentence then A is three years.

We, therefore, agree with Mr Mono that the punishment

awarded were illegal. We set them aside and give a sentence of 3 years imprisonment for each count and order them to run concurrently. B

The appeal against conviction is dismissed but that against sentence is allowed to the extent described above. The appellant is to serve a term of three years from 4 March 1992 the date he was first sentenced. It is so ordered. C

1993 TLR p253

D

[zRPz]NAOCHE OLE MBILE v REPUBLIC 1993 TLR 253 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Ramadhani JJA and Lubuva JJA

CRIMINAL APPEAL NO. 129 OF 1993 E

8 November, 1993

(From the conviction of the High Court of Tanzania at Arusha, Munuo, J.) F

Flynote

Criminal Practice and Procedure - Accused convicted without having been arraigned - Whether proper - Section 228 of the Criminal Procedure Code.
Criminal Practice and Procedure - Appeals - Powers of Appeal Court where trial was a nullity - Whether Court of G Appeal can order re-trial - Rule 36 of the Court of Appeal Rules 1979.
-Headnote
The appellant was convicted by the Economic Crime Court in absentia. In fact, the entire H proceedings were conducted in the complete absence of the appellant from the court room, i.e. he was convicted without having been arraigned.
Held: (i) One of the fundamental principles of our criminal justice is that at the beginning of a criminal trial the accused must be arraigned, i.e. the Court has to put the charge or charges to him I and require him to plead;
(ii) Non-compliance with the requirement of arraignment of an accused person renders the trial a nullity;
1993 TLR p254
A (iii) The Court of Appeal has discretion under Rule 36 of the Court of Appeal Rules to order retrial.
Case Information
Appeal allowed.
No case referred to.
B Mrs. Sumari, for Republic.
[zJDz]Judgment
Kisanga, J.A., delivered the following considered judgment of the court:
C The appellant was convicted by the Economic Crimes Court (Munuo J (Mrs)) for cattle theft contrary to s 56(1) and s 59(2) of the Economic and Organized Crime Control Act 13 of 1984, read together with para 12(1) of the First Schedule to that Act, and was sentenced to seven years' imprisonment. He has now appealed. In this Court and also in the Court below he was D unrepresented. Mrs Sumari, learned State Attorney, appeared before us for the respondent Republic.
Mrs Sumari did not seek to support appellant's conviction. She submitted that the conviction was bad E because the appellant was given no opportunity to answer the charge or to defend himself to it. With respect to the learned State Attorney, we entirely agree.
The entire proceedings were conducted in the complete absence of the appellant from the court F room. The case was called on for hearing on two different dates. The appellant was absent on both occasions. On the second occasion the Court, after endorsing on the file that the accused was absent and at large, proceeded to conduct what was really a mockery of a trial by reading out the charges and recording pleas thereto. The record reads as follows:
G `Charge read over in absentia and plea likewise in the following words:
1st Count: Not true
2nd Count: Not true
H Entered as a plea of Not Guilty in the absence of the accused persons' (sic).
The so called trial proceeded to conclusion and the appellant was convicted on the first count.

One of the fundamental principles of our criminal justice is that at the beginning of a criminal trial the I accused must be arraigned. That is to say the Court has to put the charge or charges to him

1993 TLR p255

KISANGA JA

and require him to plead thereto. In this case the appellant was charged with an economic offence, A and the procedure for such offence is provided for under the Economic and Organized Crime Control Act 13 of 1984. Upon a glance through that Act it seems that the Act makes no provision for arraignment of the accused before the Economic Court. However, s 28 of the Act provides in effect B that where the Act is silent, the procedure under the Criminal Procedure Act shall apply.

That section says:

`28 Except as is provided in this part to the contrary, the procedure for arraignment and for the hearing and C determination of cases under this Act shall be in accordance with the provisions of the Criminal Procedure Code.'

This then brings us to s 228 of the Criminal Procedure Act which makes provision for arraignment of an accused person. The relevant parts of that section provide as follows: D

`228(1) The substances of the charge shall be stated to the accused person by the Court and he shall be asked whether he admits or denies the truth of the charge. E

(2)

(3) If the accused person does not admit the truth of the charge the Court shall proceed to hear the case as hereinafter provided - ' F

Then s 33 of the Economic and Organized Crime Control Act takes over from there and provides inter alia, that:

`33 Where the accused person does not admit the truth of the information . . . the Court shall enter a plea of not guilty G to that information. . . .'

Our construction of these provisions of the law is that the requirement of arraignment of an accused person as embodied in those provisions is mandatory and non-compliance therewith renders the H proceedings a nullity. The rationale for this view is not difficult to find; it is that the accused must know the offence with which he is charged and for which he is being tried. A person should not be put in jeopardy of a conviction when he is unaware of the source of the jeopardy itself. The necessary corollary that follows from this is that the accused must be physically present and the I charge must be put

1993 TLR p256

KISANGA JA

A to him in person. Otherwise the whole principle of arraignment and the vital purpose for which it is intended are rendered meaningless.

Now, the crucial question which arises is this: In the present case was the accused arraigned? Since he was absent at the material time, to whom did the Court read out the charges? And who B gave the answers thereto which constituted the pleas of `Not Guilty' as recorded by the Court? Certainly the accused cannot be said to have been arraigned. As amply demonstrated

already, such non-compliance with the requirement to arraign the accused rendered the purported trial a nullity.

C Mrs Sumari was also at pains to point out that the learned Trial Judge failed to comply with the provisions of s 226(2) of the Criminal Procedure Act which provides that:

`226(2) If the Court convicts the accused person in his absence it may set aside such conviction, upon being D satisfied that his absence was from causes over which he had no control, and that he had a probable defence on the merit.'

Learned Counsel was of the view that upon the appellant's arrest but before his committal to prison, E it was open to the learned Trial Judge to proceed as provided for in ss (2) above quoted, but she did not. We think differently. Our view is that that subsection does not apply to a case like this where the trial was a nullity ab initio. For the subsection envisages that if the Court is satisfied that the F accuse'ds absence was justified, it may allow him to advance his defence on the merits of the case, and on the basis of such evidence, and that of the Prosecution previously recorded, proceed to give judgment. In other words the subsection empowers the Judge to re-open the trial and continue the proceedings to a judgment. However, that would be untenable here where there was really no trial at G all from the very beginning. There was nothing for the Judge to reopen and continue.

Mrs Sumari referred us to s 37(4)(a) of the Economic and Organized Crime Control Act 1984 as amended by Act 12 of 1987 which provides for the trial to proceed in the absence of an accused H person. That subsection says:

`37(4)(a) Where a person admitted to bail absconds or fails to appear before the Court before which he is required I to appear on a date fixed and conceals himself so that a warrant of arrest may not be executed -

(a) the trial in respect of that person before such court shall

continue irrespective of the stage of the trial when the accused absconds, after sufficient efforts have been A made to trace him and compel his attendance;'

We are satisfied that this provision is equally inapplicable to the present case. The learned Trial Judge cannot properly have invoked it. First, the accused never jumped bail, and indeed he was B never brought before the Court at any time. Second, since the trial `shall continue' upon certain contingencies happening or being fulfilled, this means that the provision applies only where the trial has already started. In the instant case however the trial cannot have started where the accused was never arraigned. C

Having found the purported trial to be a nullity, the question now is what is the next step? Mrs Sumari submitted that this is a fit case for the Court to order a re-trial, a discretion which is conferred on the Court by rule 36 of the Court of Appeal Rules. Her reasons for that view are twofold. First the victim D of the theft is yet to recover four of his stolen forty head of cattle. And secondly the appellant has so far served only about two years out of the prison term of seven years awarded to him. We have given thought to this submission, and we find no good reason for disagreeing. In acceding to it we also take E into account that cattle theft is a serious

offence which sometimes is the source of inter-community clashes leading to tragic consequences. We think that suspects of such offences should not be let off lightly.
In the result the appeal is allowed. The purported proceedings in the High Court are set aside, with an F order that the appellant be tried before another judge. As the appellant has been in prison for about two years, it is further directed that he be tried as soon as is practicable.
1993 TLR p258
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[zRPz]RASHID s KANIKI v REPUBLIC 1993 TLR 258 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Ramadhani JJA and Lubuva JJA

B CRIMINAL APPEAL NO. 116 OF 1993
8 November, 1993
(From the sentence of the High Court of Tanzania at Arusha, Mushi, J.)
Flynote
C Criminal Practice and Procedure - Sentencing - When a Court of appeal can interfere with the Trial Court's sentence.
-Headnote
D The appellant was charged with and convicted of the offence of defilement of a girl below the age of fourteen years. He was sentenced to ten years imprisonment. The appellant, who was a foster father of the defiled girl, appealed against the sentence.
Held: (i) It is trite principle that before a Court of Appeal can interfere with the Trial Court's sentence, E the Appeal Court must be satisfied that either the sentence imposed was manifestly excessive or that the Trial Court ignored an important matter or circumstance which ought to have been considered while passing the sentence or that the sentence imposed was wrong in principle.
(ii) All the relevant circumstances of the case were duly considered by the learned Trial Judge when deciding on the sentence.
Case Information
F Appeal dismissed.
No case referred to.
Mrs. Sumari, for the respondent.
[zJDz]Judgment
G Lubuva, J.A., delivered the following considered judgment of the Court:
Before the High Court of Tanzania, at Moshi, (N M Mushi J) the appellant was convicted of the offence of defilement of a girl below the age of fourteen years contrary to s 136(1) of the Penal Code. H He was sentenced to ten years imprisonment. Initially, the appellant was charged with the offence of incest by male contrary to s 158(1) of the Penal code as a first count and the

charge of defilement contrary to s 136(1) of the Penal Code in the alternative. At the end of the trial, the appellant was I convicted of the offence of
1993 TLR p259
LUBUVA JA
defiling a girl under the age of fourteen years. He has now appealed to this Court against the A sentence of ten years of imprisonment.
The facts are brief but unpalatable and are, on the whole undisputed. The incident took place on 21 April 1988 at a place called Shanty Town within the outskirts of the Municipality of Moshi. The victim of this unsavoury episode is one Mwamvita d/o Rashidi (PW4) who was at the time of the incident B nine years of age. At the time of the trial (1991) she had reached the age of thirteen years. In 1976, the appellant got married to Asia Zuberi (PW2). In 1978 he (appellant) again started living with Christina Sarwat (PW1) in a separate house from that of Asia Zuberi (PW2) (not a legal marriage). C By that time, Christina Sarwart had a child of her own with another person. This is the victim of this ugly sexual incident, Mwamvita Rashidi (PW4). The appellant was therefore a foster father to Mwamvia (PW4) who was staying with her grandmother, the mother of appellant in the said area of Shanty Town in Moshi. On the day of incident (21 April 1988) the appellant upon visiting his mother's D house, found Mwamvita in the company of two other children - Edward (PW3) and Rashidi who was not called in at the trial to give evidence. The appellant instructed Edward (PW3) and the other child Rashidi to go out of the house to attend to some shamba work nearby. Mwamvita Rashidi was therefore left behind alone with the appellant to clean up the servant's quarters. It was during this E time that the appellant sexually assaulted Mwamvita Rashidi. Edward, (PW3) who was with Ramadhani at a nearby shamba on hearing Mwamvita crying, rushed to see what was happening. He (PW3) saw the appellant in the kitchen holding on to Mwamvita's mouth. F
Thereafter, the matter was reported to Asia Zuberi (PW2) and Christina Sarwart (PW1) the wives of the appellant. To both PW1 and PW2 Mwamvita narrated in detail all that the appellant had done to G her. The child victim of the incident Mwamvita (PW4) was taken to the hospital by PW1 for medical examination. In the normal manner in such cases, PF3 was issued as a basis of medical investigation. The police took up the case for investigation which finally resulted in the prosecution of the appellant who was as explained earlier, convicted and sentenced to ten years imprisonment. At H the start of the trial, Mr Itemba, Learned Counsel was assigned to defend the appellant. However for some reason, in the course of the trial the appellant showed lack of confidence in Mr Itemba. Consequently another Counsel Mr A M Shayo, Learned Advocate was assigned to defend the appellant throughout the trial. I
1993 TLR p260
LUBUVA JA
A The appellant's line of defence at the trial was denial of the offence. He claimed that all the witnesses particularly his wives PW1 and PW2 were all out to fabricate evidence in order to fix him (appellant). The Trial Judge rejected this defence rightly so in our opinion. This was a case whose B determination depended on the credibility and acceptance of the evidence of the witnesses. In our view, the Trial Judge quite properly and thoroughly analysed the evidence of

the witnesses which he accepted as truthful. As a result the appellant was convicted of the offence of defiling a girl below the age of fourteen years contrary to s 136(1) of the Penal Code.

C His appeal to this Court is against sentence only. In the course of hearing the appeal and as already indicated, the appellant persistently raised arguments against the conviction. He alleged that the witnesses particularly PW1 and PW2 his wives had conspired to frame him. Likewise he claimed D that Mwambita (PW4) the victim of the sexual assault and Edward (PW3) were all taught by PW1 and PW2 to frame him. He insisted that there was no evidence that Mwamvita (PW4) was sexually assaulted as no PF3 was tendered at the trial. The appellant further asserted that he had intended to call witnesses who were not called to give evidence in support of his defence. He finally pleaded with E this Court to be lenient with him as the sentence of ten years is excessive. There was credible evidence of an unusual conduct on the part of the appellant who disappeared soon after this incident as the appellant was coming from the hospital in the company of his wife Asia Zuberi (PW2) where F PW4, Mwamvita had been taken for medical examination. According to PW2, during the time when the appellant was in hiding, she (PW2) received a letter from the appellant in which he wrote:

`Mimi naishi porini angalia watoto.'

G The appellant denied having disappeared or written such a letter. We are in agreement with the learned Trial Judge that it is incomprehensible that all these witnesses particularly his wives should fabricate evidence against the appellant. However the Court again reminded the appellant that he had H been allowed to come to this Court on the question of sentence only. This being an Appellate Court, matters of credibility of the witnesses are primarily the domain of the Trial Court which has the advantage of assessing the demeanour of the witnesses and evaluating the credibility of such I evidence. This Court will not readily interfere with the decision of the Trial Court on such an issue.

1993 TLR p261

LUBUVA JA

For the Republic Mrs Sumari learned State Attorney supported the conviction and sentence. She A submitted that though this was not an appeal against conviction but as the appellant had argued at length on conviction, she urges that the conviction was properly founded. She countered that there was abundance of credible evidence which was believed by the Trial Judge. The learned State B Attorney wondered why all these witnesses, PW1, PW2, PW3 and PW4 should all conspire to frame a case of this kind against the appellant. As the appeal on the conviction was without merit, it should be dismissed in its entirety, the learned State Attorney contended. The non-availability at the trial of the PF3 regarding the medical examination of PW4, did not in any way vitiate or weaken the C prosecution case. Mrs Sumari, learned State Attorney further submitted. It was Mrs Sumari's conclusion that in the circumstances of the case, the sentence imposed against the appellant cannot be faulted, it was lawful and not excessive for such a shameful act. D

Though indeed as rightly pointed out by Mrs Sumari, the learned State Attorney: this was not an appeal against conviction, on the evidence on record and the persistent argument of the appeal before us by the appellant, the appeal against conviction is, in our view, without any merit. We

are E satisfied that there was paucity of evidence of PW1 and PW2, the wives of the appellant which was fully supported by the evidence of the child victim of the sexual assault (PW4) and Edward (PW3). We find it highly incredible that both the wives of the appellant (PW1 and PW2) and the children F (PW4 and PW3) should all conspire to fabricate evidence against him. Even granted that PW4 was not the child of the appellant as the appellant would want this Court to believe, that in our considered view, is no reason for her (PW4) to frame a case of this nature against him. The record bears no evidence of a bad relationship between the appellant and the two wives, a version which the G appellant vainly tried to canvass at the hearing of the appeal. We do not accept that. Though we could glean from the evidence that the victim child of the sexual assault (PW4) was experienced in sexual intercourse for the reasons advanced by the Prosecution (at page 19 of the record) that the H PF3 which had been handed over to the police could not be traced and the fact that PW4 had been told by the appellant to take a wash, we are convinced like the learned Trial Judge that Mwamvita (PW4) was sexually assaulted. Furthermore, we are also satisfied that the learned Trial Judge was justified in his finding that it was the appellant who defiled Mwamvita I

A (PW4). The conviction though not a ground of appeal to this Court, can hardly be faulted in these circumstances.

On the sentence in the circumstances of the case, there can be no doubt that this was a serious and shameful act of sexual abuse against a child of tender age. As the learned Trial Judge rightly B remarked, it is an offence that calls for severe punishment. PW4, a child of tender age must in our view have suffered traumatic psychological and mental torture at the very thought of her foster father involving himself with her in this manner. At the hearing of this appeal, the appellant advanced no reasons to show either that the sentence was unlawful or manifestly excessive. Having listened to C the appellant's plea for leniency with great sympathy we see no reason to depart from the old time established principle of criminal justice in matters of sentence on appeal. That it is a trite principle that before a Court of Appeal can interfere with the Trial Court's sentence, the appeal court must be D satisfied that either the sentence imposed was manifestly excessive or that the Trial Court ignored an important matter or circumstance which ought to have been considered while passing the sentence or that the sentence imposed was wrong in principle. In this appeal, we are with respect in E agreement with the contention of the learned State Attorney that all the relevant circumstances of the case were duly considered by the learned Trial Judge when deciding the sentence. We see no reason for interfering with the sentence which in our view cannot be said to be excessive or unlawful.

F For these reasons the appeal against sentence is accordingly dismissed.

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[zRPz]THOMAS ELIAS, PAUL PETER AND MENG'OLU NDAMUNI v REPUBLIC 1993 TLR 263 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Ramadhani JJA and Lubuva JJA

CRIMINAL APPEAL NO. 34 OF 1993 B
8 November, 1993
(From the conviction of the High Court of Tanzania at Arusha, Munuo, J.) C
Flynote
Magistrates Courts Act - Jurisdiction - A Court of Resident Magistrate presided over by a District Magistrate - Whether Court properly constituted -
Criminal Practice and Procedure - Curable defects - Such defects must proceed from a trial by a Court of D competent jurisdiction - Sections 387 and 388 of the Criminal Procedure Act, 1985.
-Headnote
The appellants were charged with robbery with violence and convicted before the Resident Magistrates Court, Arusha presided over by a District Magistrate. They were each sentenced to E seven years imprisonment and were ordered to compensate the complainant. The appellants' appeal to the High Court was dismissed. On further appeal to the Court of Appeal the Court considered whether the Trial Court was properly constituted and, if it was not, whether that was a defect which could be cured by invoking the provisions of s 387 and s 388 of the Criminal Procedure Act, 1985. F
Held: (i) The Principal District Magistrate, though in terms of jurisdiction had the power to try the case for such offence as the law stands under the Magistrates' Courts Act, 1984, was not competent to sit and preside over the case in the court of the Resident Magistrate. G

(ii) Proceedings and deliberations of a court which is not properly constituted are a nullity;

(iii) The provisions of s 387 and s 388 of the Criminal Procedure Act, 1985, cannot be invoked to cure such a defect because the irregularities, errors and omissions curable under these provisions not have occasioned a failure of justice and, more importantly, they must proceed from a trial by a Court of competent jurisdiction. H
Case Information
Appeal allowed.
Case referred to:

1. William Rajabu Mallya and Two Others v. Republic [1991] TLR 83. I

J. Mono, for the respondent.
1993 TLR p264
[zJDz]Judgment
A Lubuva, J.A., delivered the following considered judgment of the court:
This is a second appeal. The appellants were charged and convicted before the Resident B Magistrate's Court Arusha for the offence of robbery with violence contrary to s 285 and s 286 of the Penal Code. The Trial Court having convicted them imposed a sentence of seven years imprisonment against each of the appellants together with an order of compensating shillings

2,370/= to the complainant. On appeal to the High Court (Munuo J) their appeal was dismissed. The C conviction and sentence were upheld. Dissatisfied with the decision of the High Court, the appellants have now appealed to this Court.

At the hearing of this appeal, Mr J D Mono, Learned Principal State Attorney appeared for the D respondent Republic. The First appellant (Thobias Elias) and second appellant (Paulo Peter) appeared in person. The third appellant (Meng'olu Ndamuni) did not appear though the Court was informed that he was duly served and had not filed his Memorandum of Appeal. At this was the third E time that this appeal was called up for hearing but still he (third appellant) could not only not attend the Court but had not as yet filed the Memorandum of Appeal, the Court decided to dismiss his appeal; a move which was also supported by the learned Principal State Attorney Mr J D Mono on behalf of the Republic. This was done in terms of Rule 74(4) of the Tanzania Court of Appeal Rules F 1979 with the liberty to have it restored upon showing sufficient cause for not appearing when the appeal was called for hearing. Otherwise, it would cause undue delay of the whole matter including the first and second appellants who, apart from having filed their Memorandum of appeal have also been appearing before the Court whenever the Appeal was called for hearing. The hearing of the G appeal of the first and second appellant was therefore proceeded with.

As a preliminary point, Mr J D Mono, learned Principal State Attorney raised the point that the appeal H was incompetent. This was because, according to Mr Mono the appeal was out of time in that the judgment was delivered on 19 July 1988 and the Notice of Appeal was given on 16 May 1991 when the requisite time for giving Notice of Appeal was long past, so urged Mr Mono. Finally, however, Mr Mono conceded and correctly so in our view, that there was nothing in the record to indicate when I the appellant became aware or was notified of the outcome of the appeal before the High

Court. Without such knowledge, it is not possible to expect the appellant to initiate action towards the A processing of an appeal against a decision which he had not known. In the circumstances and for purposes of better meeting the justice of the case, especially for the parties who had appeared in court when the appeal was called (first and second appellants) we were satisfied that it was justified for the first and second appellant's appeal to proceed. We accordingly overruled Mr Mono's B preliminary point on limitation of time and therefore allowed their appeals to proceed to hearing.

In the course of hearing of the appeal filed by the first and second appellants Mr J D Mono learned Principal State Attorney raised yet another important point of law. He submitted that this being a C second appeal it should not be entertained as there was no point of law involved. Section 6(7)(a) of the Appellate Jurisdiction Act, 1979 sets out the conditions for such appeals to the Court which if not fulfilled, should not be entertained so urged the learned Principal State Attorney Mr Mono. With D respect, we agree with him on this submission. Furthermore, Mr Mono, learned Principal State Attorney raised the question of jurisdiction. He urged that though at the High Court when the appeal was heard, his office on behalf of the Director of Public

Prosecutions was represented and E supported the conviction, upon further scrutiny and researching on the matter the issue of jurisdiction had cropped up. In his view this was a very vital aspect which goes to the very root of the case. He urged that the record of the case (pages 2 and 6) quite clearly shows that it was entitled `In the Resident Magistrate's Court at Arusha'. The record further shows that the proceedings were F presided over by one W Nathan, Principal District Magistrate. That means that the Court of a Resident Magistrate was presided over by a District Magistrate who had risen to the rank of Principal District Magistrate. As such Mr Mono argued convincingly that the trial was a nullity, it having been G tried by a Magistrate who had no jurisdiction. In support of this argument he referred us to the provisions of s 6 of the Magistrates Courts Act, 1984 which provides for the Constitution of the Magistrates Courts in Tanzania. In that section, it is provided: H

6(1) Subject to the provisions of s 7, a Magistrate's Court shall be duly constituted when held by a single Magistrate being -

(a) and (b) are not applicable and s 7 deals with primary courts sitting with Assessors.

(c) in the case of a Court of a Resident Magistrate a Resident Magistrate. I

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LUBUVA JA

A Under such legal position Mr Mono submitted that unlike the case of a District Court where the trial can be presided over by either a Resident Magistrate or District Magistrate in the case of a Court of a Resident Magistrate by law it must be presided over by a Resident Magistrate. In the case before us, Mr W Nathan being a District Magistrate was not competent to sit and preside over a trial in the Court B of a Resident Magistrate. In order to reinforce his submission, Mr Mono referred to a recent decision of this Court in William Rajabu Mallya and Two Others v Republic (1)

In that case the proceedings in the Resident Magistrate's Court were presided over by a Principal C District Magistrate. As the Principal District Magistrate had no jurisdiction to try the case in the Court of a Resident Magistrate Court, the court was not properly constituted as required under the Magistrate's Courts Act 1984. We declared the proceedings a nullity thereby setting aside the D conviction and sentence.

We have very carefully and closely considered the submission of Mr Mono, learned Principal State Attorney. As an officer of the Court, we have no hesitation in commending him for the valuable E contribution and assistance he has rendered to the court in this matter. With respect, we agree with his submission that the Court when trying the case was not properly constituted. The Principal District Magistrate Mr W Nathan, though in terms of jurisdiction had the power to try the case for such offence but as the law stands now under the Magistrate's Courts Act 1984 he was not competent to sit and preside over the case in the Court of the Resident Magistrate. That was the F wrong Court for him. Consequently, proceedings and deliberations of such a trial are but a nullity. The provisions of s 6(1)(c) of the Magistrate's Court's Act, 1984 are so clear and unambiguous that the provisions of s 387 and s 388 of the Criminal Procedure Act, 1985 cannot be invoked to cure such a defect. This is because, in our understanding of these provisions, the irregularities, errors and G omission that can be cured by

invoking these provisions of the Criminal Procedure Act are of such a nature as not to have occasioned a failure of justice and more importantly they must proceed from a trial by a Court of competent jurisdiction. This was not the case in the instant appeal. The proceedings were a product of a court which was not properly constituted. The result was a nullity H which cannot be saved by any of the abovementioned provisions of the Criminal Procedure Act 1985. This is an aspect which it would appear from the record was not looked into by the High Court on I appeal and the learned State Attorney on behalf of the Republic did not allude to it either.

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For these reasons and without going further into the other grounds of appeal we agree with Mr Mono, A the learned Principal State Attorney who did not support the conviction that the trial having been conducted by a court which was not properly constituted, was therefore a nullity. Accordingly, we set aside the proceedings, quash the conviction, sentence and the order of compensation. The first and B second appellants are to be set free forthwith unless otherwise lawfully held in custody.

In the result, with this decision, having regard to the nature of the offence and the fact that the appellants have since (19 March 1986) served a substantial part of their sentence of seven years C imprisonment, we are not minded to order a retrial; we leave the matter open for the Director of Public Prosecutions to exercise his discretion on whether or not to institute fresh charges against the appellants.

As regards the third appellant whose appeal we had ordered at the hearing of this appeal to be dismissed (under Rule 73(4)) it is accordingly ordered that he (third appellant) should be served with D a view to have his appeal restored in terms of the Rules in order to be dealt with in similar manner. It is accordingly ordered.

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F

[zRPz]WILSON FANUEL v REPUBLIC 1993 TLR 267 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Ramadhani JJA and Lubuva JJA

CRIMINAL APPEAL NO. 124 OF 1993 G

8 November, 1993

(From the sentence of the High Court of Tanzania at Arusha, Mroso, J.) H

Flynote

Criminal Practice and Procedure - Sentencing - Powers of the Court of Appeal to interfere with sentence.

-Headnote

The appellant was convicted of manslaughter on his own plea of guilty and was sentenced to six years imprisonment. He appealed against that sentence as being excessive. I

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A Held: It is trite law that an Appellate Court will not interfere with a sentence just because it would not have imposed that sentence if it were the Trial Court.

Case Information

Appeal dismissed.

B Case referred to:

1. Silvanus Leonard Nguruwe v Republic [1981] TLR 66.

Mrs. Sumari, for the Republic.

[zJDz]Judgment

C Ramadhani, J.A., read the following considered judgment of the Court:

The appellant, Wilson Fanuel, pleaded guilty to and was convicted of manslaughter contrary to s 195 of the Penal Code. He was then sentenced to a term of imprisonment of six years. This appeal is D against that sentence.

The appellant appeared in person with a four ground memorandum of appeal. He submitted that the punishment meted out is excessive, that he had readily pleaded guilty and so saved the Court from conducting a full trial, that he killed his own son in the course of chastising the deceased and that he E is now remorseful for what he has done. The appellant pleaded for leniency at the hearing of the appeal for two reasons. First, he said his family of five kids, a wife and an aged and blind mother is suffering greatly because of his incarceration. Secondly, he reiterated that he had acted inadvertently and that he had not intended to kill his son.

F Resisting the appeal on behalf of the respondent Republic was Mrs Sumari, learned State Attorney. She supported the punishment awarded to the appellant and pointed out that the appellant was just repeating what he had told the learned Trial Judge (Mroso J) who had duly taken the G mitigation into account when sentencing. The learned State Attorney agreed with the learned Trial Judge when he said:

> `But I must deprecate most strongly the brutal manner in which accused chastised his young son of ten years to the H point of causing his death. I have to impose a deterrent sentence on him and to any potential offenders of his like.'

The deceased had the habit of stealing. That fateful evening the appellant tied the deceased to a post and flogged him with a stick until he lost consciousness. Upon regaining it, the deceased asked for I and was given some water to drink. That was the end of him.

The appellant buried the deceased without reporting the incident to any authority. The body was A exhumed and a post mortem was conducted about a week later. The cause of death could not be determined but it was established that the beating was administered on the buttocks. However, and as properly pointed out by Mrs Sumari, the deceased met his death at the hands of the appellant. B Undisputably the appellant over reacted to a delinquency of a boy of tender years.

It is trite law, which we have reiterated in Silvanus Leonard Nguruwe v R (1) that an Appellate Court will not interfere with a sentence just because it would not have imposed that sentence if it were the Trial Court. The sentence of six years for such manslaughter as this one in this appeal, is not C manifestly excessive. At the same time we cannot say that the learned Trial

Judge considered matters which he ought not to have considered or that he had used a wrong principle. D
So however sympathetic this Court may be to the said situation in which the appellant is we are bound by the confines of the law.
The appeal is dismissed. E
1993 TLR p269
F
[zRPz]MELKIZEDEKI GABRIEL AND SHABANI BENJAMIN v REPUBLIC 1993 TLR 269 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Ramadhani JJA and Lubuva JJA

CRIMINAL APPEAL NO. 117 OF 1993 G
15 November, 1993
(From the conviction of the High Court at Arusha, Munuo, J.) H
Flynote
Criminal Practice and Procedure - Appeals - Appeal against Order of the High Court - Whether by an order of the High Court refusing leave to appeal to that Court is appealable to the Court of Appeal on a point of law only. I
1993 TLR p270
A Criminal Practice and Procedure - Appeals - Leave of the High Court to appeal against orders - Whether orders of the High Court appealable only with leave.
-Headnote
The appellants were jointly convicted of robbery with violence by the District Court. Their application B to the High Court for leave to challenge both the conviction and sentence out of time was dismissed by Munuo, J., for failure to show good cause. The appellants were dissatisfied with that refusal and applied for leave to appeal against it. Mroso, J., rejected their application on the ground that they raised no point of law requiring consideration by the Court of Appeal.
C Held: (i) There is no provision in the Appellate Jurisdiction Act 1979 and the Court of Appeal Rules which provides that in criminal cases a person aggrieved by an order of the High Court refusing leave to appeal out of time can go to the Court of Appeal on a point of law only;
(ii) An application for leave to appeal out of time will normally involve matters of fact;
D (iii) The learned Judge erred in requiring the applicants to raise points of law as a condition for granting leave to appeal; he should have looked into the circumstances of the case as a whole;
(iv) There is no law or rule which makes an order of the High Court in criminal cases refusing to extend time to appeal to that court appellable with leave even though the general practice E has been that such orders are appealable with leave.
Case Information

Application allowed. Matter is remitted to the High Court to proceed to hear the applicants' intended appeal.

F No case referred to.

[zJDz]Judgment

Kisanga, J.A., read the following considered judgment of the Court:

G The appellants were jointly convicted by the District Court for robbery with violence contrary to s 285 and s 286 of the Penal Code, and were each sentenced to eight years imprisonment. They sought to appeal to the High Court against both conviction and sentence, but as it appeared that they H were time barred, they applied to that Court for leave to appeal out of time. Munuo J (Mrs) who consolidated and heard the applications dismissed them because no good cause was shown for enlarging the time. Dissatisfied with the refusal, the appellants applied for leave to appeal against it but Mroso J who also consolidated and heard the applications refused them on the ground that no I point of law was involved in the ruling of Munuo J (Mrs) which required consideration by this

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KISANGA JA

Court. The present appeal arises from that decision. Although in their joint Notice of Appeal to this A Court the appellants indicate that they are appealing against the decision of Munuo J (Mrs), the true position is that they are appealing against the decision of Mroso J refusing them leave to appeal to this Court against the decision of Munuo J (Mrs). Accordingly, we treated the matter as such. B

However, after hearing the arguments, and as we were deliberating on our decision, we realized that if Munuo J's (Mrs) order was appealable with leave, then this Court would have concurrent powers with the High Court to grant such leave. We could find no good reason for thinking that the power to C grant such leave is or should be the exclusive domain of the High Court. In that case then the matter should not have come to this Court by way of appeal from Mroso J but by way of further application under rule 44 of the Court of Appeal Rules, and in terms of rule 55(1) of the Rules it should have come before a single Judge. However, we feel very concerned that this matter, as will D be demonstrated later, has suffered an inordinate delay from 1987 through no fault of the appellants, and to have it shuttled now to a single Judge would only serve to aggravate the problem further. We are also of the settled view that even if the matter came before any one of us singly he would, on the material before the Court, undoubtedly grant leave to appeal. In short, we strongly feel that shuttling E the matter for hearing before a single Judge during the next Sessions of the Court scheduled for May next year will cause grave injustice to the appellants, having regard to the inordinate delay they have already suffered through no fault of their own. It is for this reason that we have decided to invoke the F provisions of rule 3(1) of the Court of Appeal Rules and proceed to consider the matter as a further application for leave to appeal against the order of Munuo J (Mrs).

As intimated before, Mroso J refused to grant leave because the decision of Munuo J (Mrs) did not G involve any point of law requiring consideration by this Court. With great respect to the learned Judge, however, we can find no support for that view. Upon searching through the

Appellate Jurisdiction Act and the Court of Appeal Rules, we have not been able to find a provision which says that in criminal cases a person aggrieved by an order of the High Court refusing leave to appeal to H that Court out of time can come to this Court on a point of law only. Indeed we think that in practice an application for leave to appeal out of time, by its very nature, will normally involve matters of fact, such as, the date on which the applicant became aware of the judgment or decision being ap- I

A pealed against, the date he gave notice of his intention to appeal, the date he applied for a copy of proceedings, etc, etc and if, in the prosecution of his appeal he failed to do any act within the prescribed time, the reasons for such failure. Such matters, in our view, can hardly involve points of law.

B We are therefore satisfied that the learned Judge erred in requiring the applicants to raise points of law as a condition for granting leave to appeal. The learned Judge should have looked into the circumstances of the case as a whole, including the facts as deposed to in the affidavits and the way in which the application was dealt with by the Judge who handled it, and on the basis of that decide C whether or not to grant leave, if indeed leave was necessary. We say if leave was necessary because we have not been able to find any law or rule which makes an order of the High Court, in criminal cases refusing to extend time to appeal to that Court appealable with leave even though the D general practice has been that such orders are appealable with leave. Indeed rule 42(1) of the Court of Appeal Rules clearly implies that certain applications in criminal cases lie to this Court with the leave of this Court but to the best of our knowledge such applications are not specified or set out E anywhere. Be that as it may as intimated earlier the general practice has been to treat orders of the High Court, in criminal cases such as the present one as being appealable with leave. And for reasons which will be apparent presently, we are certain that had Mroso J approached the matter as outlined above he would have granted the leave sought.

F Munuo J (Mrs) found that the applicants who were convicted on 14 May 1987 did not give the requisite notice of their intention to appeal within ten days in terms of s 361(a) of the Criminal Procedure Act. She found that the appellants gave such notice only on 1 October 1990 when they G filed their affidavits in support of their applications for extension of time. She found that to be an inordinate delay and upon finding further that no good reason had been advanced for enlarging time to file Notices of Appeal, she accordingly refused the application.

H But when the applicants came before Mroso J they stated in their respective affidavits that upon their admission in prison in respect of this offence they immediately notified prison authorities of their intention to appeal. Prison authorities duly prepared the relevant notices which the applicants were made to sign on 14 May 1987. The applicants further deposed that their intention to appeal is clearly I reflected in the prison records. No counter-affidavit was

filed by the Republic to refute these claims and therefore there could be no valid ground for rejecting A them.

Again the applicants' respective proposed petitions of appeal bear endorsements by prison authorities to the effect that copy of judgment was applied for on 19 May 1987. This tends to support B the applicants' allegation on oath that they did give notices of appeal on 14 May 1987. For it is only reasonable to think that the applicants gave Notices of Appeal first on 14 May 1987 as claimed and then applied for copies of judgment on 19 May 1987 to enable them prepare the petitions of appeal.

There was, therefore, sufficient material to indicate that the applicants did give Notices of Appeal C promptly on 14 May 1987 the very date of their conviction and that they were very much in time. The fact that the said Notices are nowhere to be found is neither here nor there. They may have been mislaid by prison authorities or by the Court Registry staff. In any case the applicants have not been D contradicted when they stated on oath that they did give the requisite Notices of Appeal in time and that this was reflected in the prison records.

The applicants' respective proposed petitions of appeal mentioned earlier further bear an endorsement by prison authorities that copy of judgment was received on 16 November 1990 and E the proposed petitions of appeal were submitted on 28 November 1990. Once again this was in compliance with the provisions of s 261(b) of the Criminal Procedure Act and the proviso thereto which require an appellant to lodge his petition of appeal within forty five days of the judgment or of the day he received a copy of it. F

On the facts and circumstances of the case as re-appraised, we are satisfied that the applicants' appeals are within time. The applicants need not have applied for leave to appeal out of time in the first instance and had Mroso J properly directed himself in the matter he would have granted the G leave sought. In the result the application is allowed. The order of Munuo J is set aside. The matter is remitted to the High Court with a direction to proceed to hear the applicant's intended appeals in respect of which the said order of (Munuo J (Mrs)) was made. H

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[zRPz]MOHAMED IDDI MJASIR v MRS. JAYALAXMI JAYANTILAL JOSHI 1993 TLR 274 (CA)

Court Court of Appeal of Tanzania - Zanzibar

Judge Omar JJA, Mnzavas JJA and Mfalila JJA

B CIVIL APPEAL NO. 36 OF 1993

25 November, 1993

C (From the decision of the High Court of Zanzibar at Zanzibar, Hamid, C.J.)

Flynote

Power of Attorney - Whether creates a fiduciary relationship between the donor and the donee of such power.

Land Law - Transfer of property - Whether a person can transfer property to himself alone - Section 5 of the D Transfer of Property Decree, Cap. 150.
Contract - Contract of sale of a house - Failure of consideration - Effect thereof.
-Headnote

E One Jayantilal Bhanji Joshi, now deceased, owned a house in Zanzibar. He left for Canada in 1972 leaving his house to one Ahmed Iddi Mjasir under a power of attorney. Ahmed Iddi Mjasir had power to receive rent from tenants, effect repairs and also had power to sell the house if he thought the price offered was reasonable. In 1987 Jayantilal B. Joshi died. In 1990 Jayantilal B. Joshi's wife, the respondent, came to know that their house had been sold and filed a suit in the High Court of F Zanzibar seeking a declaration that her deceased husband was the lawful owner of the house and that the house be registered in her name as the legal representative of her deceased husband's property.

G Ahmed Iddi Mjasir, smarting under a power of attorney, prepared a deed of conveyance dated 1 October 1987 purported to be between the owner of the house and himself which showed that the owner had sold the house to Ahmed Iddi Mjasir at the price of Shs 150,000/=. On 2 October 1987 Ahmed Iddi Mjasir prepared a deed of gift between himself and his son, the appellant under which he conveyed the house to the son. The deed was registered in the name of the appellant.

H The learned Chief Justice of Zanzibar considered the legality of the transfer of the property from Jayantilal B. Joshi to Ahmed Iddi Mjasir and then from Ahmed Iddi Mjasir to his son the appellant and held that the transfer of the suit premises from Jayantilal B. Joshi to Ahmed Iddi Mjasir was illegal and therefore null and void and therefore Ahmed Iddi Mjasir had nothing to transfer to his son the I appellant. The Chief Justice based his decision on the provisions of s 5 and s 6(11) of the Law

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of Property Decree, Cap 150 of the Laws of Zanzibar and breach of fiduciary relationship created by A the power of attorney between Jayantilal B. Joshi and Ahmed Iddi Mjasir.

On appeal to the Court of Appeal of Tanzania the appellant attached the decision of the Chief Justice arguing that there was no fiduciary relationship between the Jayantilal B. Joshi and Ahmed Iddi Mjasir. It was further argued that the transfer of the property to Ahmed Iddi Mjasir was legal because B the power of attorney vested into Ahmed Iddi Mjasir the power to sell the property. In addition it was contended that the transfer of the house was backed by good consideration in the sum of Shs 150,000/=. The Court of Appeal considered all the arguments advanced. C

Held: (i) The provisions of s 5 of the Transfer of Property Decree, Cap. 150, are to the effect that if a person decides to convey property to himself (as it was in this case) such conveyance to be lawful must include one or more other living persons;

(ii) The purported transfer of the house by the late Ahmed Iddi Mjasir to himself is invalid; D

(iii) In law therefore Ahmed Iddi Mjasir owned no property capable of being transferred to his son, Mohamed Iddi Mjasir, the appellant;

(iv) Due to the power of attorney there was a fiduciary relationship between the late Jayantilal B. Joshi and the late Ahmed Iddi Mjasir, which relationship estopped Ahmed Iddi Mjasir from E obtaining advantage from the fiduciary relationship without first obtaining consent from Jayantilal B. Joshi. No such consent was sought and obtained;

(v) There was no evidence that the consideration of Shs 150,000/= as purchase price passed to the alleged vendor, the late Jayantilal B. Joshi as such the contract of sale is rituated by lack of consideration. F

Case Information

Appeal dismissed.

No case referred to:

Mbwezeleni, for the appellant.

Kagambo, for the respondent. G

[zJDz]Judgment

Mnzavas, J.A., delivered the following considered judgment of the Court:

This is an appeal against the decision of the High Court (Hamid M Hamid CJ), which nullified a deed H of conveyance dated 1 October 1987 which transferred ownership of house No 2328 situated at Sokomhogo Street to one, Ahmed Iddi Mjasir - deceased on the ground that the transfer was null and void ab initio.

Having found that the transfer of the sold property to the deceased was illegal the High Court proceeded and nullified a subse- I

A quent transfer of the house by the deceased to his son Mohamed Iddi Mjasir, the present appellant, and ordered that ownership of the house be restored to its legal owner, before it was transferred to the late Ahmed Iddi Mjasir.

B Aggrieved by the Lower Court's finding the appellant has appealed to this Court.

The following facts which were not seriously disputed by the parties were narrated to the Trial Court:

On 25 January 1956 one, Jayantilal Bhanji Joshi now deceased owned a house, No 2328 along Sokomhogo Street in Zanzibar in which he lived with his family up to 1972 when he left for Canada C where he lived with his son. Before he left he entrusted his house to the late Ahmed Iddi Njassir, appellant's father, who was to collect rent from tenants, effect repairs to the house when the need arose, pay any monies on his behalf such as land rent etc, and to keep any balance of money for D him. In 1987 Jayantilal Bhanji Joshi died.

According to the evidence of his wife Jayalaxmi Jayantilal Joshi, the respondent in this appeal, in 1990 she came to know that their house had been sold and decided to file a suit in the High Court - E Civil Case No 3 of 1992, seeking a declaration that her deceased husband is the lawful owner of the house and that the house be registered in her name as the legal representative of her deceased husband's property.

F There was no dispute in this case that the deceased, Ahmed Iddi Mjasir, smarting under a power of attorney, given to him by the owner of the house prepared a deed of conveyance dated

1 October 1987 purported to be between him and the owner of the house which showed that in consideration of the sum of Shs 150,000/= he paid to the owner of the house as purchase price, the owner of the house had sold and transferred the house to him. Equally it was not in controversy that on the G following day (2 October 1987) Ahmed Iddi Mjasir prepared a deed of gift between himself and his son, Mohamed Iddi Mjasir, the appellant/defendant and in consideration of natural love and affection for his son conveyed the house to him. The deed was registered in the name of the appellant, H Mohamed Iddi Mjasir on the same day.

The question the High Court had to decide was whether or not the transfer of the house to the deceased, Ahmed Iddi Mjasir, and later to his son, the appellant/defendant, was in accordance with I the law. In deciding this question the learned Chief Justice said inter alia:

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MNZAVAS JA

`There is no proof to the effect that the late Joshi had any knowledge to this type of transfer since no evidence was A adduced by the defendant to that effect and this Court cannot be left to assume that is the case.'

Earlier the learned Chief Justice had rejected respondent's/plaintiff's argument that her deceased B husband had not given Ahmed Iddi Mjasir power of attorney over the house and upheld the appellant's/defendant's evidence that Joshi had in fact given power of attorney to Ahmed Iddi Mjasir over the house.

However despite the power of attorney the Court held that by transferring the house to himself, C Ahmed Iddi Hjasir contravened the provisions of s 5 of the Transfer of Property Decree, cap 150 of the Laws of Zanzibar. Equally it was the Court's view that the transfer was invalid under the doctrine of fiduciary relationship.

In conclusion the learned Chief Justice said: D

`Consequently I hold that the transfer of the suit premises, vide a deed of conveyance dated 1.10.89 conveying the suit premises to the late Ahmed Iddi Mjasir to be illegal and therefore null and void and since the conveyance of the same property to the defendant very much depends upon the conveyance that bestows the ownership of the said E premises to the late Ahmed Iddi Njasir which conveyance is void ab inito it follows therefore the subsequent transfer by the late Ahmed Iddi Mjasir to the defendant automatically becomes illegal and therefore null and void.'

The Court then proceeded and declared the late Jayantilal Bhanji Joshi to be the lawful owner of F house No 2328 situated at Sokomhogo Street, Zanzibar. It was also ordered that all the rent collected from the suit premises as from 1 October 1987 be paid by the appellant/defendant to the respondent/plaintiff. The respondent/plaintiff was ordered to refund the sum of Shs 20,8224/70 which G the deceased Ahmed Iddi Mjasir paid to a bank to redeem the suit premises to the heirs of the late Ahmed Iddi Mjasir.

It was the Trial Court's order that each party was to bear its own costs. H

Before us Mr Mbwezeleni, learned Counsel for the appellant vigorously challenged the Lower Court's finding, arguing that the learned Chief Justice erred in holding that there was fiduciary relationship between the late Ahmed Iddi Mjasir and the late Jayantilal Bhanji Joshi. It was the

learned Council's submission that the power of attorney empowered the deceased Ahmed Iddi Mjasir to transfer I
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MNZAVAS JA
A the house to himself as, it was submitted, para 7 of the power of attorney vested that power to him.
Mr Mbwezeleni further argued that the High Court erred in not ordering that the sum of Shs 20,824/70 should be refunded to the appellant/defendant with interest.
B The Court was asked to allow the appeal and declare the appellant the lawful owner of the house.
In rebuttal Mr Kagambo, learned advocate for the respondent, supported the High Court decision and reiterated that the deceased, Ahmed Iddi Mjasir, acted unlawfully in transferring the house to himself.
C It was also submitted that the transfer was in contravention of the provisions of s 5 and s 6(II) of the Law of Property Decree, cap 150 of the laws of Zanzibar. The learned Counsel also argued that there was no evidence that the alleged purchase price of Shs 150,000/= for the house said to be paid D by the late Ahmed Iddi Mjasir to the late Jayantilal Bhanji Joshi passed to Joshi. And therefore, it was submitted, the sale was bad for lack of consideration. The Court was invited to dismiss the appeal.
E In reply Mr Mbwezeleni countered that there was consideration because Mr Joshi did not complain.
First and foremost we agree with the learned Chief Justice's finding that the late Jayantilal Bhanji Joshi did give power of attorney to the late Ahmed Mjasir. There was undisputed evidence that under the power of attorney the late Ahmed Mjasir had power to receive rent from tenants occupying the F house and to effect repairs on the house as and when the need arose. He also had power under para 7 to sell the house if he thought the price offered was reasonable.
However despite the fact that the late Ahmed Mjasir received rent from tenants in the house neither G the record nor the appellant in his evidence in the High Court showed that the deceased, Ahmed Mjasir kept accounts of the monies he received as rent or any monies he may have used in effecting repairs of the house. When this serious anomaly was put to Mr Mbwezeleni, learned Advocate for the H appellant, he merely said that a record of accounts may have been misplaced after the death of Ahmed Iddi Mjasir. With respect to the learned Counsel this reply is not good enough taking into account the fact that Ahmed Mjasir was entrusted with the house over twenty years ago.
Because there was no record of accounts kept by the donee it is our considered view that the I inescapable inference is that the late
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MNZAVAS JA

Ahmed Iddi Mjasir was not wholly honest. And, as rightly observed by the learned Chief Justice, there A was no evidence at all that Jayantilal Joshi knew of the transfer of the house to the late Ahmed Mjasir; leave alone his consent to such transfer.

Coming to the question whether the late Ahmed Mjasir had power (under the power of attorney) to transfer the house to himself the law is clearly set out under s 5 of the Transfer of Property Decree B cap 150 which says:

> `Transfer of property means an act by which a living person conveys property, in present or in future, to one or more other living persons, or to himself and one or more other living persons; and `to transfer property' is to perform such C act.'

It is clear from the above language that if a person decides to convey property to himself (as it was in this case) such conveyance to be lawful must include one or more other living persons. That being D the law, the purported transfer of the house by the late Ahmed Iddi Mjasir to himself is invalid. Under the law there was no transfer of the property to him at all. He in law therefore owned no property capable of being transferred to his son, Mohamed Iddi Mjasir. E

In the event we agree with Mr Kagambo's argument that the learned Chief Justice was, on the evidence, entitled to declare that the house No 2328 situated at Sokomhogo Street, the subject matter of the suit, belongs to the late Jayantilal Bhanji Joshi. F

We would also like to add, if only in passing, that due to the power of attorney there was a fiduciary relationship between the late Jayantilal Joshi and the late Ahmed Mjasir. That being so Ahmed Mjasir was estopped from obtaining advantage from the fiduciary relationship without first obtaining consent from the other party, the late Jayantilal Joshi. As we have shown above no such consent was sought. G

We also, after considerable reflection, agree with Mr Kagambo that even if for the sake of argument we were to accept the argument that the transfer of the property to the late Ahmed Mjasir was lawful there was not evidence whatsoever to show that the said consideration of Shs 150,000/= as H purchase price passed to the alleged vendor, the late Jayantilal Joshi. Needless to mention that lack of consideration vitiates a contract of sale.

In conclusion we are at a loss to know why the learned Chief Justice ordered that each party should pay its own costs. The law is that the party that wins is entitled to have his costs. One of the I

A exceptions to this rule of practice is where the parties are spouses; which is not so in this case.

It is our view that the respondent is entitled to her costs in this Court and in the Court below. It is so ordered.

B Apart from the question of costs, this appeal is dismissed.

C

[zRPz]MOHAMED IDRISSA MOHAMMED v. HASHIM AYOUB JAKU 1993 TLR 280 (CA)

Court Court of Appeal of Tanzania - Zanzibar

Judge Omar JJA, Mnzavas JJA and Mfalila JJA

D CIVIL APPEAL NO. 34 OF 1993

25 November, 1993

E (From the judgment of the High Court of Zanzibar at Zanzibar, Hamid, C.J.)

Flynote

Contract - Contract of sale - Party fails or refuses to perform an agreement - Court can order specific F performance.

Court of Appeal - Appeals to the Court of Appeal originating from District Courts in Zanzibar - Whether point of law should be certified for determination by Court of Appeal - Appellate Jurisdiction Act 1979.

G Court of Appeal - Appeals to Court of Appeals in cases originating from District Courts in Zanzibar - Leave of the High Court is required - Appellate Jurisdiction Act 1979.

-Headnote

The appellant was unsuccessfully sued by the respondent in the District Court for specific H performance of an agreement for sale of land. The District Court held that the performance of the contract had been frustrated by the intervention of the appellant's children and clan members. The respondent appealed to the Regional Court which held that the appellant's claims of frustration had not been proved. He was therefore ordered to fulfill the agreement. The appellant appealed to the I High Court which confirmed the Regional Court's decision. He further appealed.

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Held: (i) An appeal to the Court of Appeal of Tanzania in a case originating from the District Court of A Zanzibar does not need a point of law to be certified for determination by the Court of Appeal; such a case only requires leave from the High Court;

(ii) Where a party to the contract has no good reason not to fulfill an agreement, he must be forced to perform his part, for an agreement must be adhered to and fulfilled. B

Case Information

Appeal dismissed.

No case referred to.

[zJDz]Judgment

Mfalila, J.A., read the following considered judgment of the Court: C

In the district Court at Vuga, the respondent Hashim Ayoub Jaku sued the appellant Mohammed Idrissa Mohamed for specific performance of an agreement for the sale of land. The district Court D dismissed the suit holding that the performance of the agreement of sale had been frustrated by the intervention of the appellant's children and clan who blocked the deal on the ground that the land which contains ancestral graves, could not be sold to an outsider. Against this decision, the respondent successfully appealed to the Regional Court sitting at Zanzibar. The Regional Court held E that the appellant's claims that the sale had been blocked by other interested clan members had not been proved because no such clan members came forward to

give evidence in support of this claim. The Court therefore ordered specific performance of the agreement of sale. The appellant unsuccessfully appealed to the High Court against this decision. The High Court confirmed the F Regional Court's finding that there was no evidence that there were other clan members interested in this same land who could have lawfully blocked the sale. Against this decision the appellant further appealed to this Court. G

The agreement of sale or its terms are not in dispute. Both the appellant and the respondent agree that on 29 June 1989 they entered into an agreement by which the appellant was to sell his shamba situated at Muyuni to the respondent for Shs 45,000/=. That on two different occasions, the H respondent paid a total of Shs 15,000/= as advance to the appellant to enable the latter to process the Deed of Sale. On the first occasion, the respondent paid Shs 10,000/= and on the second occasion Shs 5,000/=. There was thus a balance of Shs 30,000/= which was to be paid on the execution of the Deed of Sale. At this stage, the agreement got stuck because the appellant alleged I that he could not execute the Deed

A of Sale due to opposition from his clan who maintained that he had no right or power to sell to an outsider clan land containing ancestral graves. The appellant who inherited this shamba from one Abdulfatah also alleged that as there were two other people entitled to inherit a portion of this shamba namely Abdulfatah's widow and one other unnamed person, he could not on his own sell this land. In B rejecting these allegations, both the Regional and the High Court held that there was no evidence to support them.

In his appeal to this Court, the appellant's memorandum of appeal contains four grounds; the sum C total of which is that the Chief Justice was wrong in holding that there was no evidence to support his contention that the sale agreement had been frustrated by the opposition of his clan. The appellant was granted leave to appeal to this Court by the Chief Justice who certified the following point of law for determination:

D `That the contract of sale of the land (shamba) is null and void since at the time of the sale of the said land, the applicant (in this application) had no title to that land as the inheritance formalities which could have otherwise conferred the title to him are yet to be finalised.'

E We think the best way of formulating the point of law for determination by this Court is to put it in the form of a question rather than as it was done in this case as a statement of fact. But the important period is that which was raised by Mr Mohora, learned Counsel who appeared for the F respondent. He said that since this appeal involves a case which did not originate from the Primary Court, it did not need a point of law to be certified for determination by this Court. We agree, this appeal does not fall under Part II of the Zanzibar Magistrate's Court Act 1985 because the case G originated from the District Court. All the Chief Justice was required to do was to grant leave under s 5(1)(c) of the Appellate Jurisdiction Act 1979.

Back to the substantive appeal. In all the three Court's below, the appellant's case was that he could H not execute the Deed of Sale in favour of the respondent because members of his clan opposed the sale on the ground that he could not sell clan land with ancestral graves on it to an outsider and that it was forbidden to sell land to non Africans. He added that the widow of the

late Abdulfatah and another person had an interest in the same shamba, he could not therefore unilaterally sell it. But at I the hearing of this appeal he advanced a completely new ground for his inability to execute the

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MFALILA JA

Deed of Sale. He said that he could not execute the Deed of Sale because the respondent had A failed to pay the balance of the purchase price of Shs 30,000/=. He even introduced a new element which does not appear anywhere in his evidence at the trial. He said that the respondent failed to pay the sum of Shs 13,000/= in addition to the Shs 15,000/= which would have enabled him to meet the costs of processing the Deed of Sale. The question then is whether the appellant failed to B process and execute the Deed of Sale because the respondent failed to pay the balance of the purchase price or because the claim prevented him.

As to the respondent's failure to pay the balance of Shs 30,000/=, this allegation appears to be C false. There is evidence supported by the Secretary of the Local Authority (PW2) that when the respondent went on a month long visit to Pemba, he left the money with his wife with instructions to hand it over to the appellant.

With regard to the allegation that his children and other interested members of the clan objected to D this sale, we refer to the documents Exhibits A-D produced by a record clerk in the Registry of Titles at the hearing of this appeal. It is clear from these documents that at about the same time the appellant was negotiating and concluding the sale agreement of the shamba to the respondent, he concluded the sale of the same shamba to one Suleiman Seif Masoud for a higher price of Shs 73,000/=. After receiving the additional advance of Shs 5,000/= on 2 August 1989 from the E respondent, only six days later on 8 August 1989 he sold the shamba to Suleiman Seif Masoud for Shs 73,000/= in whose favour he executed a Deed of Sale and registered it on 30 April 1993 after completing all the formalities with the relevant local authorities. This latter sale involving a higher F price, explains the appellant's change of attitude towards his agreement with the respondent. He was doing his best to find any excuse to repudiate his lower priced agreement with the respondent G in order to cash in on the higher priced sale to Suleiman Seif Masoud. But as the appellant will now no doubt realise, albeit a little late, he was trying to be too clever perhaps by half. At the hearing of this appeal, the appellant sanctimoniously preached the virtues of adhering to and fulfilling agreements and how ungentlemanly it was not to keep one's word. We would recommend to the H appellant that he puts his preaching into practice. The appellant was able to execute a Deed of Sale in respect of the name shamba in favour of Suleiman Seif Masoud without any objections from his clan, or children. It is quite clear then to us as it was to the learned Chief Justice that the story of the I clan objections as well as the

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A alleged interests of the widow were appellant's own creations designed to defeat the lower priced agreement with the respondent in order to keep the higher priced agreement with Suleiman Seif Masoud. This he cannot be allowed to do. As he himself emphasised, agreements must be adhered to and fulfilled.

B We are for these reasons satisfied as was the learned Chief Justice that the appellant had no good reason not to fulfill his agreement of sale with the respondent and execute the Deed of Sale in his favour. Accordingly we dismiss the appeal with costs both in this Court and in the Courts below. C Exhibits A to D to be returned to the Registry of Titles.

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D

[zRPz]COOPERATIVE AND RURAL DEVELOPMENT BANK v FILTON (TANZANIA) LIMITED 1993 TLR 284 (HC)

Court High Court of Tanzania - Dar es Salaam

Judge Mackanja J

E CIVIL CASE NO. 122 OF 1993

6 December, 1993

Flynote

F Civil Practice and Procedure - Adjournment - Advocate of a party engaged in another court - Whether ground for adjournment - Order 17 Rule 1(2)(c) Civil Procedure Code and the mischief the rule was intended to curb.

-Headnote

G When the matter came for hearing the court was informed that one of the advocates had travelled to appear before the Court of Appeal of Tanzania. An application for adjournment of hearing the matter was resisted on the ground that appearance by an Advocate before another H court is not sufficient cause for an adjournment as provided in Order 17 Rule 1(2)(c) of the Civil Procedure Code. The learned Judge considered the mischief this rule is intended to curb.

Held: (i) The purpose for which paragraph (c) of the proviso to Rule 1(2) of Order 17 of the Civil Procedure Code was intended was to prohibit advocates using their failure to I maintain their diaries as a ground for adjournment;

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MACKANJA J

(ii) These provisions do not cover situations which are beyond the control of the A Advocate;

(iii) Where the Court of Appeal amends its calendar as a result of which an Advocate finds himself having to appear before both the Court of Appeal and this Court, he is bound to appear before the superior Court;

(iv) Since the change of dates was made without the prior knowledge of learned Counsel B and since those changes were made well after this application was fixed for hearing it was not the Advocate's fault to find himself having to appear before the Court of Appeal and this Court on the same date.

Case Information

Order accordingly.

No case referred to. C
Chandoo, for the defendants.
E.D. Kisusi, for the plaintiff.
[zJDz]Judgment
Mackanja, J.: When this matter came for hearing of a Chamber application in which the applicants D pray that an order be made to consolidate the hearing of the several cases listed in the Chamber summons, Mr Chandoo, Advocate, informed the Court that Mr Mohora, one of the defence lawyers had travelled to Zanzibar to appear before the Court of Appeal of Tanzania. In that connection he E applied for an adjournment for several days in that they expected Mr Mohora from Zanzibar the next day.
Mr Kisusi, learned Counsel for the plaintiff strongly objected to the application. His reasons in so objecting are quite sound; for as he said, appearance by an Advocate before another Court is not F sufficient cause for an adjournment. This, indeed, is what para (c) of the provise to Rule 1 sub-rule (2) of Or XVII provides. It states:

`The fact that the Advocate of a party is engaged in another Court shall not be ground for adjournment.' G

I nonetheless granted the application for adjournment and reserved my reasons. I now give the reasons.
The purpose for which, in my view, para (c) of the proviso to Rule 1(2) of Order XVII, was meant to H cover was to prohibit Advocates using their failure to maintain their diaries as a ground for adjournment. This is not one of those cases; for as Mr Chandoo stated in reply, these provisions do not cover situations which are beyond the control of the Advocate. Obviously, where the Court of I
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MACKANJA J
A Appeal amends its calender as a result of which an advocate finds himself having to appear before both the Court of Appeal and this Court, he is bound to appear before the superior Court. Since the change of dates was made without the prior knowledge of learned Counsel, and since those changes were made well after this application was fixed for hearing, it was not Mr Mohora's B fault to find himself having to appear before the Court of Appeal and this court on the same date. I would have upheld Mr Kisusi's objection if, knowingly, Mr Mohora had participated in fixing dates for the hearing of this application so as to coincide with his appearance before the Court of Appeal. In C my opinion, therefore, Government Notice No 508 of 1991 which publishes the amendments in the Civil Procedure Code which Mr Kisusi, learned Counsel for the plaintiff, seeks to rely upon does not apply to the circumstances of this case.
D On the other hand, learned Counsel for the plaintiff sought to defeat the application for an adjournment on the premise that filing of an application for consolidation of summary suits is untenable unless the defendants seek and obtain leave to defend first. I think there are two aspects involved here: the right to defend oneself, and secondly, to have the claim consolidated so that the E defendant does not have to file separate application, to defend themselves in each

civil case. What the defendants are enjoined to do now is to challenge the merits of the claim without leave of the Court. I do not see in that desirability an implied condition that the defendants are also barred from applying to the Court for an order that the several claims against them, if they be of the same F nature, be consolidated.

Since an application to consolidate the several civil cases does not affect the merits of the claim C against the defendants, it will be expedient that the defendants be heard if they can show sufficient cause.

G In the result the objections are dismissed. Costs shall be in the cause.

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[zRPz]GODISON NDOBHO v REPUBLIC 1993 TLR 287 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Ramadhani JJA, Mnzavas JJA and Lubuva JJA

CRIMINAL APPEAL NO. 22 OF 1993 B

13 December, 1993

(From the decision of the High Court of Tanzania at Dar es Salaam, Mrema, PRM, Ext. Jur.) C

Flynote

Criminal Law - Acquittal of PW1 in a charge of assault before a Primary Court in which the appellant was the complainant - Whether a bar to P.W.1 to complain against the appellant in a charge of assault in a District Court - Whether defence of autrefois acquit or autrefois convict could be advanced. D

Evidence - Acquittal of P.W.1 in a charge of assault before a Primary Court in which the appellant was the complainant - Whether a bar to P.W.1 to complain against the appellant in a charge of assault in District Court - Section 141 of the Evidence Act, 1967. E

-Headnote

The appellant was convicted by a District Court of assault causing actual bodily harm. His appeal to the High Court was not successful. He further appealed to the Court of Appeal of Tanzania. The Court entertained only one ground of appeal which was on a point of law leaving out seven grounds F which were on matters of fact. The ground of appeal was to the effect that the complainant in the case against the appellant was in fact an accused in a charge of assault before a Primary Court. After acquittal of the accused the accused filed a case in the District Court against the appellant in a charge of assault causing actual bodily harm. The appellant argued that the filing of this second case in the District Court contravened the provisions of s 141 of the Evidence Act. G

Held: (i) The provisions of s 141 of the Evidence Act, 1967 did not bar the prosecution from filing a charge of assault against the appellant simply because the complainant (P.W.1) had already been acquitted of a similar charge in which the appellant was the H complainant. This

is because the facts in support of the charge against the appellant were different from those against the complainant and the accused persons were different;

(ii) The appellant could not advance the defence of autrefois acquit or autrefois convict as the appellant had not been convicted or acquitted of the same offence before he was convicted of the offence he is now appealing against. I

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Case Information

A Appeal dismissed in its entirety.

Case referred to:

1. Philbert Loisean and Another v. R [1956] 23 EACA 566.

Sengwaji, for the respondent.

[zJDz]Judgment

B Mnzava, J.A., delivered the following considered judgment of the court:

The appellant Godson Ndobho was convicted by the Ilala District Court of assault causing actual C bodily harm c/s 241 of the Penal Code and sentenced to two years imprisonment. Dissatisfied with the finding of the District Court he appealed to the High Court.

The High Court dismissed the appeal against conviction but reduced the sentence to six months D imprisonment. Still dissatisfied he has appealed to this Court. In his prolific memorandum of appeal to this court the appellant raised eight grounds of appeal which, in our view, all except ground one, relate to matters of fact which this court is, in view of Rule 65(2) of the Court of Appeal Rules and s E 6(7)(a) of the Appellate Jurisdiction Act, precluded from entertaining.

In ground one which concerned matters of law all the appellant stated in his memorandum of appeal is that `The Principal Resident Magistrate (Extended Jurisdiction) as he then was F misdirected himself when he joined to believe the trial resident magistrate in contravention of the provision of s 141 of the Evidence Act 1967.' Elaborating on ground one the appellant who appeared in person argued that all the prosecution witnesses told lies against him. He said that he was the G complainant and that he testified in court how he was assaulted by PW1 and his son and that after PW1 was acquitted it was wrong and contrary to s 141 of the Law of Evidence Act for the prosecution to file criminal proceedings against him and that Mrema PRM (extended jurisdiction) H erred in adopting the finding of the District Court. The court was asked to allow the appeal.

Mr Sengwaji, learned State Attorney on the other hand argued that the provisions of s 141 of the Evidence Act, 1967, could not be invoked in aid of the appellant because, it was submitted, the acquittal of PW1 in a charge of assault before a Primary Court in which the appellant was the I complainant did not bar PW1 to complain against the appellant in a charge of assault in Kivukoni

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MNZAVA JA

Criminal Case No 99952/887 in which the appellant was, as already mentioned, above convicted of A assault causing actual bodily harm. It was argued that the two cases were different and the accused persons were also different.

We have seriously considered the argument by the appellant that he should not have been prosecuted after the complainant had been acquitted of the offence of assaulting him (appellant). In B our view we agree with the learned State Attorney that the provisions of s 141 of the Law of Evidence Act, 1967 did not bar the prosecution from filing a charge of assault against the appellant simply because the complainant, (PW1), had already been acquitted of a similar charge in which the appellant was the complainant. This is because the facts in support of the charge against the C appellant were different from those against the complainant and the accused persons were different.

This is also not a case where the appellant could advance the defence of autrefois acquit or D autrefois convict as the appellant had not been convicted or acquitted of the same offence before he was convicted of the offence he is now appealing against - see the decision in Phibert Loisean and Another v R (1).

As for the sentence of six months imprisonment imposed by the High Court (Mrema PRM extended E jurisdiction) we are of the view that the sentence erred on the low side in view of the unprovoked attack of the complainant by the appellant. The appellant should consider himself lucky that this Court has not decided to enhance it.

In the event we agree with Mr Sengwaji, learned State Attorney, that this appeal has no merit and it F is hereby dismissed in its entirety.

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[zRPz]MOHAMED MUSERO v REPUBLIC 1993 TLR 290 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Makame JJA, Omar JJA and Mfalila JJA

B CRIMINAL APPEAL NO. 99 OF 1993

13 December, 1993

(From the conviction of the High Court of Tanzania at Mwanza, Masanche, J.)

Flynote

C Criminal Practice and Procedure - Identification - Use of torch light in identifying thieves - Whether reliable.

Appeals - Second appeal - Where findings of fact or inferences are perverse - Whether Court of Appeal can D intervene - Appellate Jurisdiction Act 1979 - Section 6(7) (a).

-Headnote

The appellant was convicted of robbery with violence by the District Court and sentenced to 15 years' imprisonment. His appeal to the High Court failed and his sentenced was enhanced to thirty years imprisonment. He appealed further.

E Held: (i) Where everything is equal, the Court of Appeal acting as a second appellate court, is confined by s 6 (7) of the Appellate Jurisdiction Act 1979 to matters of law only;

(ii) Where the Court of Appeal in the course of exercising its jurisdiction under s 6 (7)(a) F of the Appellate Jurisdiction Act 1979, finds that findings of fact or inferences are completely unrelated to the evidence on record, it must, in the interests of justice, intervene.

(iii) Torch lights are not effective in identifying thieves, the High Court judge's remarks on G torch beams were pure conjecture which have no room in criminal trials.

Case Information

Appeal allowed.

No case referred to.

H W.C. Magoma, for the Republic.

[zJDz]Judgment

Mfalila, J.A. delivered the following considered judgment of the court:

The appellant Mohamed Musaro was charged with and convicted of the offence of robbery with violence contrary to ss 185 and 286 of the Penal Code at the District Court of Dunda district at I Dunda. He was sentenced to 15 years' imprisonment. He appealed to the

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MFALILA JA

High Court at Mwansa where Nasancho J dismissed the appeal but enhanced the sentence to thirty A years imprisonment because `for the offence of robbery with violence c/s 285 and 286 of the Penal Code the correct punishment is thirty years. The appellant lodged this further appeal still protesting his innocence. As a second appellate Court, we are confined by s 6 (7) of the Appellate Jurisdiction Act 1979 only to matters of law. Questions of fact are supposed to have been B conclusively dealt with by the Courts better placed to do so, ie the Court of first instance which heard and saw the witnesses and the first appellate Court which evaluated the evidence and is empowered to treat the appeal as a re-hearing. This is the position in cases where everything is C equal. If in the course of exercising its jurisdiction under s 6 (7)(c) of the Appellate Jurisdiction Act, it finds that findings of fact on inferences are perverse in that they are completely unrelated to the evidence on record, this Court must in the interests of justice intervene. This is because the D attainment of justice is or should be the goal of any good law.

In the present case some violent intrusion was made at the home of Juma Wambura (PW2) at Nyandogo Village during the night. At the time Juma was not at home, he was in remand for some offence, only his two wives Suzana (PW1) and Mwajuma (PW3) were in the house. They are E therefore the two witnesses who narrated the events of that night. The two women deposed that on 22 April 1990, two men violently broke into their house and demanded to be given some money. When the intruders were told that there was no money, they started collecting some articles. They F took one radio, International in make, two radio cassettes, 50 compact cassettes, one Seiko watch, two pairs of shoes, two and a half pairs of khanga, one bedsheet, two stools, four shirts and six pairs of trousers. In the course of this stealing, the bandits injured a five year old child with a G panga on the head. Suzana added that they raised an alarm in the morning. It appears that no further action was taken, because according to Mwajuma, their father-in-law told them not to take any action until their husband came out of remand. Nothing therefore appears to have taken place until 30 July 1990 when according to

Susana, the appellant was arrested in possession of her radio H which she identified as her property. Indeed there is no evidence that any report about this break-in was ever made at the Police Station. There is therefore a gap in the circumstances leading to the arrest of the appellant apart from Juma Wambura's contention in his evidence that: I

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MFALILA JA

A `In August I caught the accused with the radio which was among the stolen things. We found the radio on the chair.'

There was of course also the evidence of another woman Nyebanano Makarai (PW4) who said that in April 1989 she bought 11/2 pairs of khanga from the appellant, and that one day as she was B wearing one piece of this khanga, she met one of Juma Wambura's wives who recognised it. This was produced as an exhibit at the trial.

C In his defence at the trial, the appellant narrated the circumstances and events which led to his arrest. He said that on 29 September 1990 at about 1 pm, he was at his home when his niece Rawa Yusuf called. After a while his nephew Jumamosi also arrived carrying a radio. He asked Jumamosi whose radio it was, Jumamosi told him that it belonged to Juma Wambura PW2. Indeed D the appellant confirmed this when he examined it because he knew the radio. Juma Wambura is closely related to him as his first cousin. Jumamosi called for batteries. He told him to get some from the bookshelf and went to take a bath. While he was dressing, Jumamosi bid him goodbye. E The following day on 30 July 1990, he went to the Police Station on some business when he was informed by one P C Francis that there was some stolen property at his house. He went back to his house accompanied by Police Officers who searched the house in the course of which a radio was recovered hidden in some couch cushions. He was arrested and taken to the Police Station. The F appellant contended that his case was planted on him by his cousin Juma Wambura who had grudges against him based on three events. The first one involved Wambura's repatriation to Ruvuma Region as a suspected cattle thief. It was then believed that it was he who had informed on Wambura. The second one involved Wambura swindling him of Shs 6,270/= in 1986 which led G to criminal charges being made against Wambura, but he later withdrew the charges on account of their close relationship. The third involved his refusal to pay Wambura Shs 9,000/= which he claimed to be his share in their joint hotel business.

H Reading the record we find that the Trial Court found that the charge against the appellant had been established for three reasons. First, that the appellant was amply identified by Suzana and Mwajuma to be one of the two bandits who broke into their house on 22 April 1990. Secondly, that one of the items i.e. a piece of khanga stolen from their house by the bandits was sold to the I woman Nyobanane by the appellant. Thirdly, that another item a radio

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MFALILA JA

stolen that night from their house was found in possession of the appellant on 30 July 1990. A

We shall first deal with the identification of the appellant by PW1 and PW3. The trial Magistrate stated:

`The complainant PW2 is related to the accused. PW1 and PW3 are the complainant's wives. Therefore the B witnesses and the accused know each other very well. Therefore the issue of mistake of identity cannot be entertained. PW1 and PW3 told this Court that they identified the accused person with the aid of torch light and by his voice when he said `tulia' and when he demanded to be given some money. I am satisfied with the evidence that the witnesses did really identify one of the robbers to be the accused. It is also true that the accused did use C actual violence in order to obtain the stolen property to wit he did cut a five year old child with a panga on the head.'

On appeal to the High Court, the learned Judge agreed with this view. After considering the misgivings expressed by the learned State Attorney whether torch light is really effective in D identifying thieves, as sometimes and quite often beams of torches are directed into the eyes of complainants, dazzling them and therefore impairing their vision the judge said: E

`I agree. But, sometimes and quite often too, thieves swing such beans of lights in search of articles to be stolen. If the torches get swung, it sometimes becomes easy to identify thieves.'

We think with respect that the misgivings expressed by the learned State Attorney about the F efficiency of torch light in identifying thieves are universally valid. The learned Judge's remarks on torch beams were pure conjecture. As the learned Judge will readily appreciate, conjecture and guess work have no room in criminal trials. In the circumstances of this case therefore the fact that G the two women as relatives knew the appellant very well, was irrelevant for his correct identification as one of the intruders. With regard to the voice this was also most unreliable in the circumstances of this case. There was not much exchange of words in this confused atmosphere, only one word `tulia' seems to have been uttered and possibly another two `lete pesa' when the H bandits were demanding money. This to us appears insufficient to enable the witnesses to make a clear identification based on voice.

The second piece of evidence which allegedly linked the appellant to this offence was the khanga found with Nyebanano. The Trial I

A Court make this linkage and the High Court went along. The judge stated:

`Anyway besides the radio, a woman was caught with a piece of khanga. The woman disclosed that the price of B khanga has been given to her (sic) by the appellant.'

We have found it extremely difficult to comprehend this linkage so readily made both by the Trial Court and the High Court. Nyabanano's evidence is clear that she bought this piece of khanga from C the appellant in April 1989, a year before the robbery at PW2's home on 22 April 1990. In her judgment, the trial Magistrate also wrote clearly that PW4 Nyebanano testified that in April 1989 the accused sold to her one piece of khanga at the price of Shs 300/=. How then could she link this D transaction which took place in 1989 to the robbery of 1990? In the circumstances we are satisfied that the transaction involving the sale of the piece of khanga by the appellant to Nyebanano in 1989 had no relevance or bearing to the robbery which took place at PW2's house in 1990.

E Lastly we turn to the radio. The robbery at PW2's house took place in April 1990 and by the time the radio was allegedly recovered at the appellant's house, no report had been made at the Police Station, not even after the release of PW2 from record prison. We ask ourselves why, particularly when the two women victims of this robbery claimed to have clearly identified one of the bandits. F The whole thing was left hanging until by some chance the appellant went to the Police Station on his own business when he was told that there were some stolen properties in his house. How did P C Francis know of this, who reported the stealing and presence of this radio? Why did PW2 and his wives remain silent all this time? These unanswered questions lend credence to the appellant's G theory that for the reasons which he gave, this radio was planted at his house by Jumamosi on the instructions of Juma Wambura (PW2). Both the Trial Court and the High Court capitalised on the fact that Jumamosi denied taking any radio to the appellant. But we think they overlooked two H important things. If Jumamosi was part of the conspiracy, his denials could only be expected. Secondly the fact that the appellant called him as his witness, lends credence to his story that Jumamosi had brought the radio. He did this innocently. He could not have risked to call a false witness who would spoil his case by denying all knowledge of the radio. It is true that his niece I Rawa was not called, but we think the appellant gave good reasons

why this did not happen. If either or both the Trial Court and the High Court on first appeal had A addressed themselves to these weaknesses in the prosecution case, we are sure they could not have convicted the appellant. Hence the necessity for our intervention. There is also another matter which we think affects any consideration of the appellant's involvement. We think that given the close blood relationship between the appellant and Juma Wambura, the appellant could not harm B his five year old nephew if he was one of the bandits who raided PW2's house that night.

Mr Magoma, learned State Attorney, who appeared for the Republic found himself in the unfortunate position of having a split personality. To support the appellant's conviction in accordance with official C instructions and his personal conviction that the appellant's conviction was unsupportable for the very good reasons which he gave. We give credit to Mr Magoma's personal position in this appeal with which we agree. D

For all the foregoing reasons, we are satisfied that the appellant's conviction cannot be supported by the evidence on record. Accordingly we allow the appeal, quash the conviction and set aside the 30 year prison sentence. We order the appellant's immediate release from prison unless he is otherwise lawfully detained. E

F

[zRPz]PASCAL MWITA AND TWO OTHERS v REPUBLIC 1993 TLR 295 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Ramadhani JJA, Mnzavas JJA and Lubuva JJA

CRIMINAL APPEAL NO. 124 OF 1993 G
14 December, 1993
(From the conviction of the High Court of Tanzania at Mbeya, Mchome, J.) H
Flynote
Criminal Law - Theft - Stealing by agent - Penal Code - ss. 265 and 273.
Criminal Law - Theft - Accessory after the fact of stealing - Penal Code - ss. 387 and 388. I
1993 TLR p296
A Criminal Law - Theft - Receiving stolen property - Penal Code - s 311(1).
-Headnote
The first two appellants were convicted of stealing by agent by the District Court and sentenced to three years' imprisonment while the third appellant was convicted by the same court of receiving B stolen property and he was also sentenced to three years' imprisonment. They all appealed to the High Court which upheld their convictions and sentences. They appealed further.
Held: (i) The first and second appellants were properly charged with the offence of stealing by C agent and were rightly convicted by the offence as charged;
(ii) There was ample evidence in support of receiving property knowing it to have been stolen in respect of the third appellant;
(iii) The sentence of three years imprisonment is not excessive bearing in mind that the maximum penalty for such offences is ten and seven years imprisonment D respectively.
Case Information
Appeal dismissed.
Cases referred to:
1. R v Erunasoni Sokoni s/o Eria and Another [1947] 14 EACA 74.
E 2. R v Nanji Sunderji [1935] 2 EACA 130.
Sengwaji, for the Republic.
[zJDz]Judgment
Mnzavas, J.A., read the following considered judgment of the court:
F The three appellants were jointly charged before the Mbeya District court with four counts. The first and second counts are stealing by agent c/ss 265 and 273 of the Penal Code. These faced the firstt and second appellants. The third count was being accessory after the fact to stealing c/ss 387 and 388 of the Penal Code. The fourth count was receiving stolen property c/s 311(1) of the Penal G Code which was in the alternative to the third count. These two counts faced the third appellant before this Court and one Jumanne Nyagawa, the third accused in the District Court who was acquitted.
H The following facts which led to the arraignment of the appellants were not seriously disputed:
The first and second appellants were at the material time employees of the Anti-Corruption Squad and were based in Mbeya. In September, 1990 they were in Sumbawanga on duty. On

information received they, on 24/9/90, searched the house of one, Emmanuel, Simba who they suspected to I have in his possession illegally acquired property. In their search they found Simba in possession of

1993 TLR p297

MNZAVAS JA

Shs 1,000,000/= cash. They brought the money with them to Mbeya for further investigations. On A arrival in Mbeya they briefed their boss one Victor Mimbe, (PW9), about the money and Simba's explaination that the money had been sent to him by a businessman in Dar es Salaam to buy maize. After hearing from the two appellants their boss ordered them to return the money immediately to Simba in Sumbawanga. They returned to Sumbawanga on 20 September 1990 and, B according to the evidence of their boss, PW9 when asked about the money by the Regional Police Commander in Sumbawanga they told him that they had handed over the money to their boss, PW9, and that it was now in the Anti-Corruption Squad office in Mbeya. It was after this information that the RPC. in Sumbawanga ordered the arrest of the first and second appellants. C Soon after their arrest PW9 received a telephone message from Sumbawanga asking him to go to first and second appellants' houses and collect Shs 700,000/=and Shs 300,000/= respectively from their wives and take it to the office of the Anti-Corruption Squad in Mbeya. The two appellants' D houses were searched. Shs 680,617/= was found in a big suitcase in first appellant's house but no money was found in second appellant's house.

After the appellants were brought to Mbeya they, on interrogation, said in their statements they had E kept the money in their houses - (Exhibit P.5.). In their defence before the Court of first instance both the first and second appellants denied that they had committed the offence. It was their defence that there was bad blood between them and police officers in Mbeya because at the F material time they were investigating the RPC Rukwa, one, Omari Mahita, on an allegation of corruption and that they were in the process of traping the Rukwa OC-CID, (PW2), who was about to receive money as corruption but that the trap leaked. It was because of this enmity that the police in Sumbawanga decided to tell lies against them so as to cause them their undoing. The two G appellants also told the Trial Court that they decided to keep the money in their houses after they had failed to get reliable transport from Tunduma to Sumbawanga and that they found it unsafe to remain with such big amount of money in a guest house in Tunduma. H

As for the third appellant, (fourth accused in the District Court), the prosecution case was that on 1 October 1990 he took money from Juma Kondo, (PW10), in the presence of one, Asha Kondo and the third accused who was acquitted. Juma Kondo (PW10) stated in his cautioned statement the amount was Shs 300,000/= which was in six bundles of Shs 50,000/= each. I

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MNZAVAS JA

A Third appellant's defence in the District Court was a complete denial. After hearing evidence from both sides the District Court was satisfied that the prosecution has proved the charges against the appellants and convicted the first and second appellants of stealing by agent

and sentenced each of them to three years imprisonment. The third appellant was convicted of B receiving stolen property and was sentenced to three years imprisonment.

Dissatisfied with the decision of the District Court they appealed to the High Court. After evaluating C the evidence in the district court, the High Court, (Mchome, J.), was of the view that there was ample evidence before the District Court to entitle the learned resident magistrate to find that the prosecution has proved the charges against the appellants beyond reasonable doubt and accordingly dismissed the appeal. Still dissatisfied the appellants have come to this Court.

D In his defence before us the first appellant who appeared in person and unrepresented argued that he should have been charged with stealing Shs 600,000/= not Shs 700,000/= as shown in the charge sheet because the second appellant had admitted receiving Shs 400,000/= not Shs 300,000/= as shown in the charge sheet. It was his argument that if this Court accepts his E submission then it should find that the charge against him was defective.

Secondly it was his defence that the Trial Court should not have believed the evidence of Ester, (PW11), because it was argued, she gave her evidence one year after the case had started and that she was summoned by the police to tell lies against them (first and second appellants). The F first appellant went as far as saying that he believed that the police message said to have been received by PW.9 was sent by the police in Sumbawanga and not by Ester (PW.11). The reason for such behaviour by the police in Sumbawanga was that they were determined to cause them G their undoing of the alleged enmity between them.

Finally the first appellant argued that as the owner of the money was not called as a witness it was wrong for the Republic to charge them with stealing by agent. According to his defence they should H have been charged with stealing by person employed in public service.

The second appellant, like the first appellant, also challenged the credibility of Ester (PW11). He said she lied against them. It was his argument that the owner of the bar from which she telephoned was not called as witness.

I As for the money he is alleged to have stolen he said he had Shs 400,000/= in his office.

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MNZAVAS JA

The third appellant challenged the Trial Court's assessment of the prosecution witnesses. It was A argued that it was wrong for the learned resident magistrate to find that the evidence of PW10 was corroborated by Jumanne Nyagawa who was a co-accused; and whose evidence needed corroboration before being acted upon. It was also his defence that Juma Kondo told lies against him. B

We would like to start with the evidence of PW9, Victor Mkumbe, regarding the instructions he gave to the two appellants (first and second appellants). He said inter alia:

> `. . . I ordered the investigators to return the money to Simba so that the process of buying maize could proceed as C scheduled. I also gave them a pistol so that they could use it for protection on the way to Sumbawanga . . . On the following day the RPC (Sumbawanga) telephoned me . . . and told me that Kondo and Mwita had told the RPC in their statements that

they handed over the money to me in the office and that by that time the money was in the Anti-Corruption Sqard Mbeya office.' D

That the first accused lied to the RPC Sumbawanga that he had handed the money - Shs 1,000,000/= to his boss, (PW.9), is amply demonstrated by his cautioned statement to PW.5, E Exhibit P.3. When he was cross-examined by the learned state attorney in the District Court about his statement to PW.5 he replied inter alia:

`. . . I did not deny to make my cautioned statement . . . I do not deny the cautioned statement but I am saying that the statement on it is not sufficient.' F

In his defence he gave a diametrically opposed story about the money. He said he had left the money, Shs 600,000/= according to him, at his house. As his wife was away when he left he G entrusted the money to his house maid who was to tell the wife to return the money to the Anti-Corruption Squad the following morning. The money was apparently not returned to the office, and when his house was searched and Shs, 680,617/= was found in a suit-case his wife claimed that Shs 400,000/= belonged to one Mahali who had requested her to buy a car for him as she was H going abroad. Shs 200,000/= belonged to one Egina, who had requested her to buy her a video set. Shs 50,000/= has been paid to her as an outfit allowance. The rest of the money was proceeds from their shop-business.

If first accused's story to PW8 was anything to go by, the I

A Shs 600,000/= the 1st appellant said he kept in his house to be handed to the office was no where to be seen. However, as there was no evidence either from the said Mahali nor from Egina that they owned the money the Court believed that the money found in the suitcase was part of the Shs 700,000/= the first appellant was entrusted to return to the owner.

B At this juncture we are to ask ourselves why the first appellants chose to lie to the RPC that they had handed the money to their boss PW9.

Dealing with a similar situation the Eastern Africa Court of Appeal has this to say in R v Erunasoni C Sekoni s/o Eria and Another (1),

`Although lies and evasions on the part of an accused do not in themselves prove the facts alleged against him, they may, if on material issues, be taken into account along with other matters and the evidence as a whole when D considering his guilt.'

In the present case, and as rightly observed by the High Court, because of the urgency of the matter PW9 gave the first and second appellants a pistol to protect them and the money they were E carrying to hand over to its owner in Sumbawanga.

They said they found it risky to stay with the money in a guest house at Tunduma so they decided to return to Mbeya. In our view it would have been more logical for officers of first appellant and second F appellants' calibre to entrust the money to the police at Tunduma police station for safe custody till next morning when they would continue with their safari to Sumbawanga that to travel all the way to Mbeya to keep the money in their houses.

And what is more they arrived in Mbeya at 4 p.m. but for reasons best known to themselves they did G not think it wise to contact their boss and inform him they had decided to return to

Mbeya with the money. If they had done so and failed to trace him; they, being senior officers, knew or ought to know that they should have surrendered the Shs 1,000,000/= to the police station for safe custody. This they did not do but decided to keep the money in their houses - but as already mentioned above on arrival in Sumbawanga they told naked lies to the RPC that they had handed the money to H their boss PW9.

Even if we are to agree with the appellants (first and second) that they decided to keep the money in their houses that act was a departure from instructions by their boss, PW9. That this is the law is I shown in the decision in R v. Nanji Sunderji (2) it was held:

1993 TLR p301

MNZAVAS JA

`Where property is entrusted to a person and he converts it to his own use and disposes of it, whether or not the A intention to do so was conceived at or after the receipt of the property, as soon as there is an overt act showing a departure from the instruction in regard to it, the offence of theft is complete and a foundation for a case of receiving with guilty knowledge laid.' B

In the present case the money Shs 700,000/= kept in first appellant's house was found to be Shs 19,383/= short. Of that kept in second appellant's house Shs 300,000/= disappeared into thin air and is yet to be recovered.

As for first appellant's argument that PW11 should have been found by the Trial Magistrate to be C unworthy of credit because she was called as a witness very late in the case in an effort by the prosecution to fix them as they were at the time investigating allegations of corruption against the RPC and the OC-COD. It is our considered view that even if the testimony of PW11 is excluded D there was, as rightly argued by Mr Sengwaji, learned state attorney, other evidence in support of the prosecution case. There was for example no reason why the first and second appellants told lies to the RPC that they had handed the money to their boss, PW9. The question of enemity with the police could certainly not have made them lie about the where-abouts of the money. E

The argument that the first appellant had Shs 600,000/= and the 2nd appellant Shs 400,000/= was clearly an afterthought as there was evidence from PW1 that the first appellant was entrusted with Shs 700,000/= while the second appellant was handed Shs 300,000/=. There was also the F cautioned statement of Juma Kondo (PW10) which was to the effect that second appellant's wife handed him Shs 300,000/= for safe custody while he later told the court in his evidence that he had received Shs 400,000/= from second appellant's wife. In her assessment of PW.10's evidence the learned resident magistrate was in a better position to decide which of the two versions was to be G believed. She said she believed the cautioned statement because his evidence in court was to support first and second appellants' story that the second appellant had Shs 400,000/= and the first appellant Shs 600,000/=. The reason for the change was found to be the fact that the witness, H (PW10), is a brother of second appellant. We need not mention that this is a second appeal and we ordinarily do not deal with questions of fact which as in this case have been thoroughly scrutinised by the two courts below. I

1993 TLR p302

MNZAVAS JA

A On the facts the first and second appellants were properly charged with the offence of stealing by agent; and, on the evidence, they were rightly convicted of the offence as charged. There was also, as we have already shown above, ample evidence in support of receiving stolen property knowing it to have been stolen in respect of the third appellant.

B As for the sentence of three years imprisonment we are of the view that it does not call for interference by the Court bearing in mind that the maximum penality for offences of this nature are ten and seven years imprisonment respectively.

C The appeal is accordingly dismissed in its entirety.

1992

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1992 TLR p1
A
[zRPz]HARUNA NDOLOGA v SANGULA CHIGONELA 1992 TLR 1 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J

13 January, 1992
Flynote
Criminal Law - Bonafide claim of right. B
-Headnote
After the failure by the appellant's brother to refund bride price, the respondent took some cattle belonging to him. The respondent, upon a complaint by the appellant, was charged for cattle theft. Both the Primary and District Court found him not guilty. The C appellant appealed to the High Court.
Held: There was no theft but a mistaken claim of right.
Case Information
Appeal dismissed. D
[zJDz]Judgment
Mwalusanya, J.: The appellant Haruna s/o Ndologa was the complainant at Dodoma Urban Primary Court. He complained that the respondent Sangula s/o Chigonela had stolen his 20 head of cattle. The trial court held that the respondent was no guilty, E because when he took the cattle he had an honest, but mistaken claim of right because he thought he was entitled to a refund of bride price. The appellant made his first appeal to Dodoma District Court and he failed and hence this second appeal.
Like the two courts below, I find that this appeal is bankrupt of merit. It is clear from F the evidence that the respondent went to collect the cattle in broad light on the understanding that he had the right to the refund of bride price from the brother of his wife's father. He even reported to the C.C.M. that he had taken the cattle. That was not theft. In the memorandum of appeal the appellant states that the marriage between the G respondent and the daughter of his brother is still subsisting. However that is a point to be taken in a civil suit but not in a criminal court. The appellant can sue the respondent claiming the seized cattle on the ground that he is not liable to refund the bride price for H his brother and when the marriage has not been dissolved in a court of law. But the acquittal of the respondent was proper in law.

In the event I find that this appeal has been lodged without sufficient ground of complaint, and therefore the appeal is summarily rejected. I
Order accordingly.
1992 TLR p2
A
[zRPz]D P P v PAUL REUBEN MAKUJAA 1992 TLR 2 (HC)

Court High Court of Tanzania - Tanga
Judge Msumi J

10 February, 1992
Flynote
Criminal Practice and Procedure - Pleas - Equivocality and unequivocality of pleas; B
Statutory Interpretation - Whether section 63 (2) (a) of the Road Traffic Act creates a mandatory minimum sentence of two years imprisonment for offences committed under section 40.
-Headnote
On pleading guilty to a charge of causing death by dangerous driving c/s 40(1) and C 63(2) (a) of the Road Traffic Act the respondent was convicted and fined Sh. 6,000/= in the District Court of Tanga. The DPP appealed to the High Court on the ground that the sentence was not only manifestly inadequate but also violates section 63(2)(a) of D the Road Traffic Act which has prescribed a minimum sentence of two year imprisonment. The respondent contended that the plea was equivocal hence the conviction was not lawfully sustainable.
Held: (i) Under section 63 (2)(a) of the Road Traffic Act the mandatory minimum E sentence of two years imprisonment applies only when the Court has opted for a custodial sentence as opposed to other types of punishment;
(ii) before accepting a plea of guilty by the accused the court must be satisfied that the F accused's reply is nothing but a clear admission of guilt;
(iii) the plea of the respondent was equivocal.
Case Information
Appeal dismissed. G
[zJDz]Judgment
Msumi, J.: On his plea of guilty, respondent was convicted of causing Death by Dangerous Driving Contrary to Sections 40(1) and 63(2)(a) of the Road Traffic Act. He was sentenced to a fine of shs. 6000/= or three months jail. Dissatisfied with the H sentence the Director of Public Prosecutions is presently appealing against it. And in apparent ignorance of the existence of the appeal by the Director of Public Prosecutions, respondent filed appeal against his conviction. He is arguing that his pleas was not unequivocal. Since the appeal of the Director of Public Prosecutions cannot be I deliberated upon without somehow the court considering whether or not respondent's pleas was unequivocal, notwithstanding its
1992 TLR p3

MSUMI J
irregularity, the appeal by respondent was also allowed to be argued upon. A
In the petition of appeal by the Director of Public Procesutions it is argued that the sentence of a fine of shs. 6000/= or three months jail in default is manifestly inadequate and it is also illegal since the law provides for a mandatory minimum sentence of three B years for the offence. As for the belated appeal of the respondent the Republic is submitting that respondent's plea was unequivocal hence the conviction is legally sustainable. But without prejudice to this argument the Republic is praying for order of retrial in case the court finds that respondent's reply to the charge did not amount to C admitting the guilt, but also the facts narrated by the public prosecutor to the court are inconsistent with the alleged offence. To be specific, the learned counsel pointed out the fact that whereas the charge sheet alleges that respondent drove on the extreme left of the road and thereby knocked down deceased, the sketch map of the scene of the D accident produced by the prosecution in support of the facts of the case shows that in fact deceased was knocked down in the middle of the road.
The argument that there is statutory minimum sentence of two years imprisonment for the offence of causing Death is based on the wording of Section 63(2)(a) of the Road E Traffic Act which, as far as material, says:

63 - (2): Any person who is convicted of -

F (a) an offence under Section 40 shall be liable to a term of imprisonment of not less than two years but not exceeding five years and the court may in addition thereto impose a fine not exceeding one hundred thousand shillings ..... (emphasis supplied). G
With respect the correct interpretation of this provision does not support the Republic's view that the Section has created a mandatory minimum sentence of two years imprisonment for the offence committed under Section 40. It is common view that the phrase "shall be liable" when statutory used in the prescription of penalties does not H have compulsory effect. In simple language, what it actually means is that besides other forms of punishment authorised by law, court may impose the prescribed sentence which is usually the maximum. The erroneous view held by the Republic appears to I have been caused by the words "not less than two years" appearing
1992 TLR p4
MSUMI J
in the Section. It is true that these words set a mandatory minimum sentence of two A years imprisonment. However, this sentence becomes mandatory only after the court has opted for a custodial sentence as opposed to other types of punishments. If after convicting the accused the court decides to send him to jail, then the term of such B imprisonment should not be less than two years and not exceeding five years. It is not true that in every case where accused has been convicted of causing Death by Dangerous Driving, he must be sentenced to a minimum of two years imprisonment. It is quite lawful for the court to impose a sentence other than imprisonment as it did in this case. C
The second limb of the argument against the sentence is equally not tenable. The learned trial magistrate fully rationalized the sentence he has imposed. Quite correctly the magistrate took

into account; as mitigating factors, the fact that respondent was a first offender, he promptly pleaded guilty and the heavy family commitments he has. D Taking those factors in consideration the sentence of shs. 6000/= or three months jail cannot be impugned for being manifestly inadequate.

As regards respondent's plea, it is evident that it is not unequivocal. His statement in E mitigation clearly shows that he did not grasp the nature of the offence at the time when he pleaded guilty to it. It does not appear that all the ingredients of the offence were fully explained to the respondent before his plea was taken. Whenever there is indication that accused intends to plead guilty, court should take effort to carefully explain to him F each and every ingredient of the offence and a plea of guilty should only be entered if his reply to such explanation clearly shows that he has understood the nature of the offence and he is without qualification, admitting it. Except when it is absolutely satisfied that accused reply is nothing but a clear admission of the guilt, court should be warry of G entering a plea of guilty where the nature of the offence is such that may likely lead the accused to think that his alleged offensive conduct is the actus reus of the offence without the other necessary ingredients such as culpable knowledge. Thus in the present case it is evident that what the respondent admitted was the fact that he caused the H death of the deceased. From what he said in mitigation it is clear that he is refuting the allegation that he caused the death of the deceased because his manner of driving at the material time was either dangerous or reckless. To the contrary he is contending that there was no way he could avoid knocking down the deceased. This contention I appears to be supported by the sketch map of the scene

of the accident which shows that deceased was knocked in the middle of the road A and not on the extreme left as alleged in the particulars of the offence. It appears what happened in this case is similar to what transpired in the Republic v Himo [1971] E.A. 351 where George, C.J., as he then was, said:

B In the first place one ought to examine with much care a plea of guilty to a charge of Causing Death by Dangerous Driving. The accused may intend to do no more than to admit that he was responsible for the accident which caused the death.

This observation underscores the earlier warning that as a general principle, court C should be chary of accepting plea of guilty in this type of cases.

I agree with the learned State Attorney that in the event the plea is declared equivocal, an order should be made for retrial. I think it is clear for the interest of justice that D prosecution is given opportunity to prove their allegation against the respondent. In conclusion this appeal is dismissed. However, the conviction is quashed because the plea of the respondent was not unequivocal. The case is referred to the District Court of Tanga for retrial. E

Appeal dismissed.

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Court Court of Appeal of Tanzania - Dodoma
Judge Ramadhani JJA, Mnzavas JJA, Mapigano Ag. JA

20 February, 1992 G
Flynote
Criminal Law - Murder - Committed in pursuance of rape.
Evidence - Credibility of witness for conviction - Essential.
-Headnote
The two appellants were convicted, by the High Court, of the murder of a tender age H girl of twelve years called Mwajuma Maiko. The appellant were convicted basically on the evidence of PW.1 who testified that on 24/5/87 she saw the first appellant calling the deceased and the second appellant blindfolding her with a red handkerchief as they I escorted her inside a certain house. She never
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saw the deceased alive again. The post-mortem report, which was admitted without A dispute, showed that the deceased was defiled; the hymen was ruptured and there was evidence of ejaculation, and the body was burnt by hot water to the extent of 75%. In the appeal before the Court of Appeal the defence council was challenging the conviction of the appellants on the grounds that PW.1 was an unreliable witness and B that the learned judge erred when he found the first appellant as a principal offender because what he did was simply to ask the deceased to get into the house after which he left thereby disassociating himself.
Held: (i) PW.1 was a reliable witness and her evidence as to what the appellants did C could be relied upon by the court;
(ii) the evidence of PW.1 was party corroborated by the evidence of PW.3;
D (iii) the first appellant actively involved himself in the crime and there is no evidence showing that he disassociated himself at any time.
Case Information
Appeal dismissed.
Mbezi, for the appellants E
Nyabiri, State Attorney, for the Republic
[zJDz]Judgment
Ramadhani and Mnzavas, JJ.A. and Mapigano, Ag. J.A.: Richard Matangule, F Appellant 1 is the father of Elia Richard, Appellant 2. The two have been convicted of the murder of a tender girl of twelve years called Mwajuma Maiko. The post-mortem report, which was admitted without dispute, showed that the deceased was defiled; the hymen was ruptured and there was evidence of ejaculation, and the body was burnt G by hot water to the extent of 75%.
The prosecution procured three witnesses but Dorika d/o Berege (PW.1) was the one on whose evidence the conviction was secured. As for Tatu d/o Mashumbu (PW.2), a girl of ten years, the learned trial judge (Mwalusanya, J.) told the assessors thus: "... H her evidence does not

implicate any of the accused with the offence". In his judgment also Mwalusanya, J. wrote: "... she denied to have had witnessed the two accused taking the deceased into the room". So her evidence was not at all taken into account. Likewise, the testimony of Kenneth s/o Hembelo (PW.3) was held not to implicate I the appellants in any way. All that PW.3 deposed was that sometime

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on the fateful day he saw four girls including PW.1 and PW.2 going in a certain A direction while Appellant 1 was behind them.

PW.1 stated that in the morning of Sunday 24/5/1987 she, together with PW.2, the deceased and a fourth girl, were playing at the house of Appellant, 1, her paternal uncle, the younger brother of her father. Then she was called inside the house by Appellant B 1 and there she found two other men besides her cousin, Appellant 2. However, PW.1 was just dismissed and she went out. Then the Appellants went outside and Appellant 1 told the deceased to get into the house. As the deceased did so, Appellant 2 blindfolded her with a red handkerchief and both appellants escorted her inside. The Appellant 1 C came outside, leaving Appellant 2, the deceased and the other two men inside, and ordered PW.1 and the other girls to go to play at their grandmother's. PW.1 never again saw the deceased alive.

The Appellants were represented in this appeal, as they were at the trial, by Mr. D Mbezi, learned Counsel. He had two grounds of appeal.

In the first ground Mr. Mbezi argued that the conviction was wrong as it was founded on the unreliable evidence of PW.1. In the first place Mr. Mbezi submitted that PW.1 E was a self-confessed liar. When cross-examined, Mr. Mbezi pointed out, PW.1 replied "I did not see any other person inside". However, Mr. Mbezi proceeded, upon re-examination PW.1 said "Inside the room I saw three persons seated including 2nd accused. I was lying when I answered defence Counsel the contrary". In the second F place, Mr. Mbezi submitted, the demeanour of PW.1 in Court portrayed her to be a witness not worthy of belief. Mr. Mbezi said that the learned trial judge vividly described her demeanour in his judgment thus: "... PW.1 when testifying looked worried and hesitant and was always looking down". Yet despite of that, Mr. Mbezi continued, G the learned trial judge rationalized her demeanour and held PW.1 to be a witness of truth. In the third place, Mr. Mbezi contended, the evidence of PW.1 was contradicted by that of the other two prosecution witnesses. The learned Counsel pointed out that PW.1 claimed to have been with PW.2 at the Appellants' premises yet on H cross-examination PW.2 differed from PW.1. Mr. Mbezi wondered how that could have been if both witnesses were together at the material time. Then Mr. Mbezi also pointed out that whereas PW.1 had said that Appellant I ordered them to go to play at their grandmother's after the deceased had got inside, PW.3 testified that PW.2 had I gone to his home crying and that PW.3 did not say that

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PW.1 was with PW.2 at the time. Lastly, Mr. Mbezi in impeaching the credibility of A PW.1, questioned her delay to report the matter while the body of the deceased was seen the following morning.

In the second ground, which was in the alternative to the first, Mr. Mbezi argued that the learned trial judge erred when he found Appellant 1 a principal offender. Mr. Mbezi B said that according to PW.1 all that Appellant I did was to ask the deceased to get into the house after which he left thereby disassociating himself.

On behalf of the respondent/Republic was Mr. Nyabili, learned State Attorney. He submitted that the conviction founded on the evidence of PW.1 alone was sound and C added that there was no need of corroboration since PW.1 was not a child of tender years. Mr. Nyabili submitted that the inconsistencies were more apparent then real. He pointed out that according to Esteri Matangule (DW.1), the wife of Appellant 1 and the mother of Appellant 2, PW.1 had gone twice to the house of the Appellants. Mr. D Nyabili said that PW.1 first went there in the morning and it was then that she saw Appellant 2 and the other two men. The learned State Attorney said that PW.1 went again in the noon when Appellant 2 and his colleagues were not there. Mr. Nyabili submitted that the question which PW.2 was asked was ambiguous and hence her E reply appeared contradictory.

As for the demeanour of PW.1, Mr. Nyabili reiterated what the learned trial judge had said: she was torn between telling the truth and testifying against her uncle and cousin.

On the second alternative ground Mr. Nyabili submitted that if PW.1 is believed then F the actions of Appellant 1 spoke for themselves. Mr. Nyabili stated that the leading of a blindfolded deceased into the house and the chasing away of the girls afterwards, brought Appellant 1 squarely under the preview of Section 22(b) of the Penal Code. G

We must say at the outset that the case was very poorly presented at the trial. The sequence of the events was not clearly brought out. We agree with Mr. Nyabili, for instance, that PW.1 went to the house of the Appellants twice; at the first time both Appellants as well as the other two persons were around and at the second time H there was only Appellant 1 whom she served lunch. DW.1 supported PW.1 on that. Admittedly there are some contradictions in the testimonies of the two, that is PW.1 and DW.1, with which we shall deal soon. Secondly, we have noted that the times given, I as is to be expected from villagers, were estimates and to a great extent added to the confusion.

That notwithstanding, we are satisfied that PW.1 is credible. First, this is because the A learned trial judge found her to be so and he is the better judge of that basing on the demeanour. The shyness and the fidgeting exhibited by PW.1 in Court was to be expected of a village adolescent girl speaking in public. It would seem that she had not even been to school. This is in addition to the reason the learned trial judge gave that B PW.1 was between the devil and the deep blue sea. Secondly, we have found PW.1 reliable on the totality of all the evidence before the Court. PW.1 has said that she had gone to the house of Appellant 1 and she was supported by Appellant 1 himself and DW.1. Then PW.1 said that she cooked food for and served it to Appellant 1. Here C DW.1 stated that PW.1 did not cook but only served food to Appellant 1. However DW.1 and PW.1 are agreed that PW.1 served food to Appellant 1. In the third place, PW.1 said that Appellant 2 had two visitors that fateful morning. Appellant 2 himself admitted that and so did

Appellant 1 though DW.1 mentioned one visitor. But how D would PW.1 have known of these visitors or even a visitor is she had not actually been there in the morning. Finally, there is the fact that Appellant 2 was left at home with his two colleagues. This is what PW.1 had said and she was supported by Appellant 1 and Appellant 2 though he claimed that the other visitor had left before his father. E

Thus in the main we are satisfied that PW.1 told the truth and the gist of her testimony was that the Appellants were the last known persons to have been with the deceased. This fact, without any doubt, casts a very good suspicion on them. But this in itself is F not conclusive proof that the Appellants killed the deceased.

However, there are other factors too. First, we have never been able to know why the Appellants blindfolded the deceased as they led her inside. Then there is another question: why Appellant 1 chased away the other girls. Here there is the evidence of PW.3 who saw the girls going with Appellant 1 behind them ensuring, as it were, that G they were really gone. Lastly, the Appellants had to give an explanation of when and how they parted with the deceased. On the contrary they gave deliberate lies. Appellant 2 was categoric that he never saw PW.1 or the deceased and the other girls that day. H Appellant 1, on the other hand, prevaricated. In examination-in-chief Appellant 1 said "When I went to church I did not leave her [PW.1] behind". Answering the first assessor Appellant 1 said "When I went to church I left the deceased, Dorica and Tatu at my home". Yet upon re-examination Appellant 1 replied "When going to church I I left them (deceased, Dorika and Tatu) playing at their homes and

not at my home. I said at their homes and not mine". A

Now, these deliberate lies and the refusal to give an explanation corroborate the case for the prosecution that they are responsible for the death of the deceased.

As for the alternative ground of appeal we are of the firm view that it has no merit at B all. Appellant 1 escorted the poor girl inside the house, then chased away her playmates and conveniently made himself scarce. He cannot have dissociated himself with what he had helped to facilitate.

We must confess that this situation of a father and a son being privy to a sexual assault C on a girl aged twelve years has exercised our minds considerably. However, that goes to motive which is not essential in a criminal conviction. However, ritual practices cannot be ruled out especially considering the question of picking and choosing the victim which preferred a much younger girl than PW.1. The story of the defence that this was all a D frame-up because Appellant 1 was suspected of continuing illicit relationship with the mother of the deceased is bogus. Father and son were very bedfellows for such a plot.

E Appeal dismissed.

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[zRPz]ALLY BAKARI & PILI BAKARI v REPUBLIC 1992 TLR 10 (CA)

Court Court of Appeal of Tanzania - Domoma

Judge Mapigano Ag. JA, Ramadhani JJA, Mnzavas JJA

20 February 1992
Flynote
Evidence - Circumstantial - Facts from which inference of guilt is drawn must be proved G beyond reasonable doubt;
Criminal Law - Recent possession - Applicability of the doctrine.
-Headnote
On 1/11/86 at about 8.30 pm, two persons called at the house of PW.2 when he was H outside relieving nature. They were let in by Ally Hassan, now deceased. Immediately thereafter PW.2 heard a sound of a gunshot. He ran to the house of his neighbour. When he returned he found the deceased having a wound on the abdomen. In addition I the culprits had stolen several items including PW.2's sewing machine head. None of the culprits was identified. The

deceased died later. PW.1 asserted that he met the appellant having a gun a few A hours before the incident and further that the appellant confided to him that he intended to rob someone. PW.3 alleged that he was called by the appellant while in remand prison and informed that he, the appellant, had hidden a sewing machine head in the bush and requested him to retrieve it and send it to his (appellant's) home. On B 24/12/86 PW.3 went to the scene and found the machine but did not take it. Somehow other people got wind of the event and as a result he was arrested and joined with the appellant in a charge of murder. He was discharged later. The machine was tendered in court as an exhibit. The trial judge convicted the appellant for murder. He appealed C to the Court of Appeal on the grounds, inter alia, that the doctrine of recent possession which was used to find the appellant guilty was misapplied on the ground that there was no sufficient evidence that the sewing machine belonged to PW.2. D
Held: (i) Where the evidence against the accused is wholly circumstantial the facts from which an inference adverse to the accused is sought to be drawn must be proved beyond reasonable doubt and must be clearly connected with the facts from which the inference is to be inferred. E (ii) as PW.2 could not with certainty show that the sewing machine (Exh. P.2) belonged to him the doctrine of recent possession could not be applied in this case.
Case Information
Appeal allowed. F
Alimwike, for the appellant
Njulumi, for the Republic
[zJDz]Judgment
Mapigano, Ag. J.A. and Ramadhani and Mnzavas, JJ.A.: On 1/11/86 at about G 8.30 p.m. one Ally Hassan was shot with a firearm and killed. The incident took place in his village of Mulua in the Kondoa District, inside the house of PW.2 Juma Bakari, his relative. The appellant was charged with the murder of the deceased man and tried by the High Court. On 20/3/91 Maina, J.

sitting at Kondoa convicted him of the offence H and consequently sentenced him to death. This is an appeal from that judgment.

PW.2 gave an account of the commission of the crime before the High Court. According to him, two persons called at his house in that night when he was outside relieving nature. They were let in by the deceased and immediately thereafter he heard I the sound of

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gunshot. He was terrified and he did the only practical thing: he ran to the house of his A neighbour. When he returned to his house he found the deceased within doors, having sustained a wound in the abdomen. The culprits had made away with several valuables including PW.2's sewing machine head, Simanco make. Neither the deceased nor B PW.2 could identify any of the two culprits. The deceased later died.

When the evidence is properly examined it becomes plain that the two culprits were involved in a common design to commit a robbery, and that their plan envisaged the instant use of maximum violence to overcome any possible resistance. It also becomes C plain, as the learned trial judge apprehended, that the evidence led against the appellant was circumstantial in nature. That evidence related to the appellant's alleged encounter with PW.1 Paulo Fokas in the morning of 1/11/86 in the village of Sori; a request which was allegedly made by the D appellant to PW.3 Halifa Sefu, his nephew, at the remand prison; and the discovery and identification of a sewing machine head, Simanco make, i.e. exhibit P.2, that followed that request.

PW.1's allegation was that he met with the appellant on 1/11/86 early in the morning. E He was in his garden when he saw the appellant passing by. He called the appellant and sought his hand to put a bag of tomatoes on his head. His request was met with a positive response. The appellant put down his bag and came to PW.1. On getting closer PW.1 observed that the appellant had a magazine that contained bullets. PW.1 was F suspicious and he told the appellant that he wanted to see what he was carrying in the bag. The two went to the bag which the appellant opened and took out a gun. Next the appellant levelled the gun at PW.1 and threatened to do harm to him if he revealed that he (appellant) was possessed of the weapon. Finally the appellant disclosed to him G that he intended to use the weapon to rob some one of a sewing machine head and other things in discharge of a deal he had made with another man. All this was denied by the appellant.

The narrative of PW.3, also denied by the appellant, was that he went to the remand H prison on 19/12/86 and saw the appellant, as he had received a message from his sister that the appellant wanted to talk to him. The appellant told him that he had hidden a sewing machine head in the bush and requested him to go to the place and retrieve it, that is, take it to his (appellant's) house. He went to the place on 24/12/86 and saw I the machine, exhibit P.2, but he did not take it. He went and sought counsel from his friends, but somehow

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other people came to know about the hidden machine and he was arrested, confined A and charged with the murder of the deceased along with the appellant. He was discharged nine months later.

The appellant told the trial Court that both PW.1 and PW.3 had cause for telling a lie against him, namely, that PW.1 wanted to avenge the death of his brother Valentine B who, while in the company of the appellant, was shot and killed by the police; and that PW.3 simply wanted to extricate himself from the charge he was facing.

Exhibit P.2 was shown to PW.2 at the trial and the witness claimed that it was his property and the one that was stolen by the bandits who killed the deceased. He did not produce any document to support his claim and he would not remember its serial C number. Under cross-examination he was candid enough to say that "if exhibit P.2 is put with others of this type, I cannot say it is mine. What I say is that the sewing machine head stolen from my house was Simanco make". D

The trial judge believed the evidence of PW.1 and PW.3. He also accepted the evidence of PW.2 that exhibit P.2 was his property and that it was the very sewing machine head that was stolen during the killing of the deceased. He paid attention to the fact that PW.2 had once been a co-accused of the appellant and he took the view that E his evidence required corroboration, as a matter prudence, before it was acted upon. He found such corroboration in the evidence of PW.3 and, accordingly, he treated the case as one admitting of the application of the doctrine of recent possession of stolen property.

Of the seven grounds of appeal filed by Mr. Alimwike, learned advocate, on behalf of F the appellant, only five bear our consideration. The first grounds attacks the finding of the trial judge on the credibility of PW.1. In his address Mr. Alimwike argued that it is highly unlikely that the appellant would have made such a serious and risky disclosure to PW.1. He demonstrated how in his testimony PW.1 had diverged from the statement G he had previously made to the police. He submitted that the trial judge was wrong when he dismissed the appellant's contention that PW.1 was ill-disposed to him as a result of the violent death of his brother Valentine. Appearing for the respondent Republic, Mr. H Njulumi, learned State Attorney, generally supported the reasoning and findings of the trial judge.

The second ground of appeal attacks the finding of the trial judge on the credibility of PW.3. Mr. Alimwike's submission was that the judge ought to have approached the evidence of that witness with greater caution. With respect, we have failed to see the I point

of this submission, because that is exactly what that learned judge did. The judge, as A shown, looked for corroboration.

The third ground of appeal faults the learned judge for holding that the evidence of PW.1 supplied corroboration to that of PW.3. Mr. Alimwike said that he had failed to see how the evidence of PW.1 could have done so. Again with respect, we agree B with Mr. Njulumi that the evidence of PW.1 could serve that purpose, provided that it was itself credible.

The fifth ground is that the trial court went wrong in accepting the evidence of PW.2 to the effect that exhibit P.2, was the sewing machine head that was stolen from the house C of PW.2, and that the doctrine of recent possession was thus misapplied. Mr. Alimwike submitted that there was no sufficient evidence that exhibit P.2 belonged to PW.2. On his part, Mr. Njulumi pointed out that the appellant had not claimed the machine to be his and no body else except PW.2 had lodged any such claim. D

Our view is that there was hardly any truth in the appellant's allegation that PW.1 bore hard-feeling against him in consequence to the death of Valentine. The evidence does not show why that death might have engendered such impulse in the mind of PW.1. We agree with Mr. Alimwike, however, that the encounter between PW.1 and the E appellant, as described by PW.1, was quite peculiar.

It was said that the appellant ordered PW.1 to sit down and then threatened him with the gun. Yet within no time the appellant went on to confide to PW.1 about his atrocious plan. It is an undeniable fact of life that the normal run of such criminals do not behave F in such a thoughtless and dangerous manner.

It is true that in his testimony PW.1 shifted from the statement he had made to the police and he more or less admitted that fact. He told the trial Court that he reported the appellant's disclosure to the police on 2/11/86, that is the day following the murder. G But when the police-statement was shown to him by the defence Counsel he agreed that he might have done so a week later. He also testified that he did not accept the appellant's invitation to be a partner in the intended robbery, whereas in his police-statement he stated that he had agreed to take part in the commission of the crime. H

Given the uncommonness of PW.1's account and the discrepancies we have alluded to, we think that it was needful for the trial Court to apply practical wisdom in viewing and assessing the credence of that story.

The evidence of PW.3 pertained to the discovery of exhibit P.2 in the bush. We I entirely agree with the trial judge that the

evidence of this witness required corroboration. As shown, the judge held the view A that the evidence of PW.1 provided the required corroboration. The judge accepted the word of PW.2 and found that exhibit P.2 was the machine that was stolen from the house of PW.2 immediately after the deceased was murdered in that house. The judge went on, as mentioned already, to apply the doctrine of recent possession. B

To be sure, if upon a charge for murder it is proved that the deceased person was murdered in a house and that the accused stole goods from the house, as was the case here, and that the accused was a few days afterwards found in possession of the stolen C goods, that raised the presumption that the accused was the murderer, and unless he can give a reasonable account of the manner in which he became possessed of the goods, he would be convicted of the offence.

Mr. Alimwike's argument was essentially that the doctrine of recent possession was D inapplicable in this case, in that it was not established that exhibit P.2 was the property of PW.2

and the very sewing machine head that was stolen by the two murderers. This argument has tremendous force.

Quite clearly, as a matter of law and logic, it is essential for a proper application of the E doctrine of recent possession, that the stolen thing in the possession of the accused must have a reference to the charge laid against the accused. That is to say that the presumption of guilt can only arise where there is cogent proof that the stolen thing possessed by the accused is the one that was stolen during the commission of the F offence charged, and, no doubt, it is the prosecution who assumes the burden of such proof, and the fact that the accused does not claim to be the owner of the property does not relieve the prosecution of that obligation.

Also pertinent to this matter is the rule that in a case where the evidence against the G accused is wholly circumstantial, the facts from which an inference adverse to the accused is sought to be drawn must be proved beyond all reasonable doubt, and must be clearly connected with the fact sought to be inferred therefrom.

The vital question which needs to be considered and answered, therefore, is whether H there was sufficient evidence to support the finding of the trial judge in respect of exhibit P.2. This takes us back to the evidence of PW.2.

As shown above, PW.2 could not produce any document to support his claim that exhibit P.2 belonged to him. He said he could not remember the serial number of the I sewing machine head that

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was stolen from his house. Under cross-examination he put the matter bluntly and, on A our part, there is no mistaking the state of his uncertainty, and we again quote: "if exhibit P.2 is put with others of this type, I cannot say it is mine. What I saw is that the sewing machine head stolen from my house was Simanco make". It is highly improbable that he B was the only person who had acquired a Simanco sewing machine head in Kondoa. And it is to be observed that it was not PW.3's allegation that the appellant had intimated to him that the sewing machine which was lying in the bush had been stolen from the house of PW.2.

We respectfully think that the identification of exhibit P.2 by PW.2 came short of the C requisite proof and we, therefore, agree with Mr. Alimwike that there was no proper occasion to invoke the doctrine of recent possession in this case.

In the final event we sustain the last ground of appeal, which is that having regard to D the totality of the evidence on record which was wholly circumstantial, the guilt of the appellant was not proved beyond reasonable doubt. We accordingly quash the conviction and set aside the sentence, and we order the appellant's immediate discharge from custody if he is not otherwise lawfully held. E

Appeal allowed.

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[zRPz]DAMIAN FERDINAND KIULA & CHARLES v REPUBLIC 1992 TLR 16 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Kisanga JJA, Ramadhani JJA and Mfalila JJA

23 February, 1990 G

Flynote

Criminal Law - Dying declaration - Authenticity and weight of a dying declaration.

Criminal Law - Murder - Provocation - Conditions for its invocation.

-Headnote

This is an appeal from a conviction of murder by the High Court. The facts were that H the appellant and the deceased were husband and wife and were living together at the material time. There was no dispute that the appellant stabbed and killed the deceased. What was in dispute was the motive, circumstances and reasons for the attack. The I prosecution relied on a dying declaration, Exh. P.2, which

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stated that the appellant attacked the deceased when she told him that she was A leaving him on account of his drunkenness and quarrelsome behaviour. But, according to the defence, the appellant attacked the deceased on account of her refusal to give him his money and provocative words and acts accompanied therewith. The trial judge was of the view that the deceased's dying declaration was weak and unreliable. However, B he held that the words and acts of the deceased did not amount to legal provocation. On appeal.

Held: (i) For the defence of provocation to stick, it must pass the objective test of whether an ordinary man in the community to which the accused belongs would have C been provoked in the circumstances;

(ii) the words and actions of the deceased did not amount to legal provocation;

(iii) the recording officer had no reason to lie against the appellant and that the dying declaration was authentic and contained a painful lament by a dying mother. D

Case Information

Appeal dismissed.

[zJDz]Judgment

Mfalila, Kisanga and Ramadhani, JJ.A.: The appellant was convicted of the E Murder of his wife and sentenced to death by the High Court sitting at Dar es Salaam (Kyando, J.). He lodged this appeal against both conviction and the sentence of death.

There were no eye witnesses to the killing of the deceased woman Siwajibu Kondo. F She was stabbed in the privacy of their house, all the witnesses who arrived at the scene including her cousin Ali Kondo (P.W.2) found her already stabbed. However there was no dispute on the identity of the killer. The appellant admitted stabbing his deceased wife and that she died of this stab wound. What was seriously contested by the G defence at the trial were the motive, circumstances and reasons for the attack. According to the prosecution who relied on the deceased's statement which was reduced into writing and admitted in evidence as a dying declaration Ex. P.2, the appellant attacked the deceased when she announced that she was

leaving him on H account of his drunkenness and quarrelsome behaviour. But according to the defence, the appellant attacked the deceased on account of her provocative acts and words.
The stabbing of the deceased was of such a nature and extent that the knife embedded in the neck could not be removed at the local hospital, the deceased had to be I referred to Muhimbili Medical
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Centre where the knife was dislodged and handed over to Inspector Jumanne Itunga. A But while still at Tumbi Hospital Kibaha, the deceased had occasion to call Inspector Itunga and told him the circumstances of her being stabbed. Inspector Jumanne Itunga reduced this statement into writing and this is Ex. P.2. The person who inflicted this B injury could only have intended to cause death or at the lowest to cause grievous bodily harm. On the other hand, the appellant explained that he stabbed the deceased following her provocative behaviour both in words and deeds. He said that after leaving the Police Force, he started doing some business and farming, in which the deceased was fully C involved. In the course of time they managed to accumulate shs. 80,000/= which the deceased was keeping. On the day in question, he asked the deceased to give him some shs. 25,000/= for his business trip to Morogoro. Not only did she refuse him this money but she used offensive language. This, he said, angered him and he attacked her with a knife. D
The learned trial judge considered the deceased's dying declaration as providing the motive and circumstances of the appellant's attack on the deceased, but he rejected it, stating that he was unable to place much reliance on it because in his view it was weak E and unreliable on account of the contradictions between the version given by P.W.3 and P.W.4. The contradiction being that while P.W.3 stated that the deceased gave reasons for the appellant's attack on her, P.W.4 categorically stated that she did not, she having become too weak to continue speaking. On the other hand, the learned judge accepted the version given by the appellant, that he attacked the deceased F when she refused to give him the money and used what he called "dirty words", but in his view this could not have provoked "an ordinary reasonable literate Chagga living in a village". He therefore convicted him of murder and sentenced him to death. G
In this appeal, the Tanzania Legal Corporation filed one ground of appeal on behalf of the appellant complaining that the learned judge erred in rejecting the defence of provocation, and at the hearing of this appeal Mr. Lubulira emphasized that the deceased's refusal to hand over money to the appellant as requested and her use of H dirty words must have provoked him to such an extent that he lost his self-control and acted in the heat of passion. He argued that this was how an ordinary Chagga would have reacted in the circumstances.
For the defence of provocation to stick, it must pass the objective test of whether an I ordinary man in the community to which
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the accused belongs would have been provoked in the circumstances, and the best A judges to determine this question are the assessors, for they are "the ordinary persons of the community to which the accused belongs". If courts adhere to this simple test and as amplified and explained in various judgments of this Court, the need to resort to judgments passed and pronounced in a different sociological context would never B arise. We have in mind the case cited by the trial judge when considering the presence or absence of provocation in this case. In considering whether the act of the deceased refusing to hand over money to the appellant amounted to provocation in law, the trial judge quoted remarks from an old case which to us appear not only unsuited to the C facts of the present case but out of place in the context of the present sociological environment. The learned judge stated:

D As regards the act of the deceased refusing to hand over money, the courts have repeatedly stated that in the case of an uneducated African villager, the reasonableness of his reaction to the provocation must be gauged not by what the judge would have done, but by what an average tribal villager might have done in the circumstances. E

This passage is from Kasumbwe v R. (1944) - EACA 116 at page 119. Unless these words were only meant to denigrate the African as it was fashionable in those days, we do not see the relevance of singling out the uneducated African villager whose reactions F should be related to the average tribal villager, and not to what the judge would have done. The Ordinance and its definition of provocation which have been in force since 1930 makes no such distinction. Everybody, whether an uneducated African villager or otherwise must be judged according to what an ordinary man of his community would G have reacted in the circumstances and not what the judge would have done. As we stated earlier, this case is also unsuited to the facts of this case because the present appellant is not an uneducated African villager. It could not therefore be applied to him even if it were sociologically acceptable. Section 202 of the Penal Code which H defines provocation provides as follows:

202. The term "provocation" means and includes, except as hereinafter stated, any wrongful act or insult of such a nature as to be likely, when done to an ordinary person, or I in the presence of an ordinary person to another person who is under

A his immediate care, or to whom he stands in a conjugal, parental, filial or fraternal relation, or in the relation of master or servant, to deprive him of the power of self-control and to induce him to commit an assault of the kind which the person charged committed upon the person by whom the act or insult is done or offered and: B

For the purposes of this section the expression "an ordinary person" shall mean an ordinary person of the community to which the accused belongs.

In the present case the "dirty words" allegedly uttered by the deceased were not C considered because the appellant did not specify them, but even if he had done so, they would not in our view have amounted to provocation because in the appellant's own words, up to that stage he thought the deceased was joking. What angered him was, D to quote his own words:

After I had washed and returned into the house that is when she displayed her hostilities, deceased refused completely to give me the money. Because of this I was seized with E anger

and I became very bitter because it is I who earned that money. In that state of anger and bitterness I injured my wife with a knife.

The learned judge was of the view that an ordinary reasonable educated Chagga F would not have been provoked by the deceased's action of refusing to hand over money to him. He would have taken other measures to get the money. We are not certain whether the learned judge was in a position to put himself into the shoes of what he called "an ordinary reasonable educated Chagga". Secondly, there was no G evidence that the appellant is educated apart from the fact that he was at one time a policeman. The learned judge would have been on firmer ground if he had gone by the views of the assessors who rejected the appellant's story. They seemed to prefer the dying declaration as providing the basis for the attack on the deceased. They H however stated that even if the appellant's story were true, the refusal by the deceased to hand over money would not have provoked him to make him commit the kind of assault he committed on the deceased. In legal language, the assessors were saying that no ordinary man of the appellant's community, would I

be provoked by the actions of the deceased to the extent that the appellant claims he A was.

For our part we do not think there were good reasons for regarding the dying declaration in Ex.P.2 as weak and unreliable. It was recorded by a police officer who had no reason to lie against the appellant. The fact that P.W.4 did not hear the deceased B give reasons for the attack cannot be explained solely on the basis that the reasons recorded by P.W.3 were invented. Indeed the dying declaration appears very authentic as it contains a painful lament by a dying mother - "who will look after my children?" These moving words could not have been invented by P.W.3. C

For these reasons we are firmly of the view that the dying declaration provides the motive for the killing of the deceased and that the appellant invented the money story which as the assessors stated, even if it were true, could not have amounted to provocation in law. The appellant's attack on the deceased was cruel, intended and D calculated to cause death. His conviction for murder was in these circumstances well founded. Accordingly this appeal has no merit and it is dismissed.

E Appeal dismissed.

F

[zRPz]ABDULKADAR A. MOHAMEDALI v REGISTRAR OF TITLES 1992 TLR 21 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Ramadhani JJA, Mnzavas JJA, Mapigano Ag. JA

28 February 1992 G
Flynote

Land Law - Land registration - Whether or not the Registrar of Titles has power under Cap. 334 to register a sub-title.
-Headnote
The appellant had applied, under Cap. 334, to the High Court seeking for orders that a deed of conveyance between him and one A.H. Shamshudin be registered and a H "sub-title" be issued conferring rights over Plot No. 266 Alan Road, Upanga CT. No. 186181/46 to him. The Registrar submitted that there was no provision in the Land Registration Ordinance, Cap. 334, that empowered the Registrar of Titles to register appellant's "sub-titles". I
1992 TLR p22
MNZAVAS JJA, RAMADHANI JJA, MAPIGANO AG. JA
The High Court judge upheld the Registrar's submission and dismissed the application A as incompetent. The appellant sought the assistance of the Court of Appeal.
Held: The deed of conveyance between the vendor and the appellant was a registrable B document under section 8(1)(b) of the Registration of Document's Ordinance, Cap. 117, but this argument was not conversed before the High Court.
Case Information
Appeal dismissed. C
Ngasala, for Appellants
Registrar of Titles, appeared in person.
[zJDz]Judgment
Mnzavas and Ramadhani, JJ.A and Mapigano, Ag. J.A.: This is an appeal against D the ruling of the High Court (Rubama, J.), dated 30/4/90.
The appellant/applicant had applied to the High Court seeking for orders that a deed of conveyance between him and one A.H. Shamshudin be registered and a "sub-title" be issued conferring rights over Plot No. 266 Alkham Road, Upanga CT. No. E 186181/46 to him.
In support of the application in the High Court the appellant/applicant relied on the provisions of the Land Registration Ordinance, Cap. 334 of the Laws.
In the High Court the respondent, the Registrar of Titles, submitted that there was no F provision under the Land Registration Ordinance Cap. 334, that empowered the Registrar of Titles to register appellant's "sub-titles".
In his ruling the learned judge said, inter alia:
G I have gone through the law (Cap. 334) under which this application has been made and have not been able to identify any provision under which this Court could order the respondent to register the applicant's sub-title.
The learned judge then proceeded and dismissed the application as incompetent. H
When the appeal came up for hearing on 26/11/91 and after hearing Mr. Ngasala, learned counsel for the appellant, it was glaringly clear to us that Mr. Ngasala had not I made sufficient research on the law pertaining to real property. We accordingly
1992 TLR p23
adjourned the matter and gave the learned counsel three days to do some research. A

When the appeal came up again for hearing Mr. Ngasala abandoned his earlier argument that the learned judge should have invoked his inherent powers under section 95 of the Civil Procedure Code and grant the application. He now argued that the deed B of conveyance between the appellant/applicant and the vendor in connection with Plot No. 266 Alkhan Road, Upanga, CT. No. 186181/46 should be registered under the Registration of Documents Ordinance, Cap. 117 of the laws.

With respect to the learned counsel for the appellant/ applicant the application before C the High Court was based under the Land Registration Ordinance, Cap. 334 of the laws. As we have already mentioned above the learned judge held that the application was incompetent, based as it was, under Cap. 334 of the laws.

With respect we agree with the finding of the learned judge that Cap. 334 deals with D land registration and was inapplicable on the facts of this case which concerned limitation of the vendor's interest over the property situated on the above mentioned plot.

We agree with Mr. Ngasala that the deed of conveyance between the vendor and the appellant was a registrable document under section 8 (1) (b) of the Registration of E Documents Ordinance, Cap. 117, but this argument was not canvassed before the High Court.

In the event we dismiss the appeal with costs. The appellant/ applicant is at liberty to make a fresh application before the Registrar of Documents to seek registration of the deed of conveyance between him and the vendor under the Registration of F Documents Ordinance, Cap. 117.

G Appeal dismissed.

1992 TLR p24

A

[zRPz]NIMROD ELIREHEMAN MKONO v STATE TRAVEL SERVICE LTD. & MASOO SAKTAY 1992 TLR 24 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Ramadhani JJA, Mnzavas JJA, Mapigano Ag. JA

28 February 1992 B

Flynote

Civil Practice and Procedure - Convictions in Criminal case - Whether or not conclusive of the commission of the offence by the accused for purposes of a civil suit.

Civil Practice and Procedure - Written Statement of Defence - Whether the Advocate can C sign on behalf of his client.

Civil Practice and Procedure - Written Statement of Defence -Amendment of - Without leave of the court - Whether fatal to the proceedings.

-Headnote

In the District Court of Musoma the second respondent, then accused, was convicted D of causing death by dangerous driving and driving a motor vehicle on a public road in a manner

which having regard to all the circumstances then pertaining was dangerous to the public or to any other person using the road. After the conviction the appellant E sued the respondent in the High Court claiming Sh. 4 million as damages for the benefit of the deceased's estate. In the course of the proceedings two issues arose. First whether or not the 2nd respondent was negligent in his driving. Second whether the amended W.S.D. by the second respondent was properly before the court and F whether the signing of the said W.S.D. by the 2nd respondent's advocate was proper in law. As to the first question the judge ruled that negligence was still an issue in the Civil case before him. On the second issue the judge said the W.S.D was properly before G him and that the signing of the W.S.D. by the advocate was in order. The appellant appealed to the Court of Appeal.

Held: (i) Under section 43A of the Tanzania Evidence Act, a conviction in criminal proceeding in the absence of an appeal, is conclusive evidence that the person so H convicted was guilty of that offence;

(ii) the proviso to 0.6 R.14 of the Civil Procedure Code allows an advocate by reason of absence of the client or for other good cause to sign on behalf of his client; I

(iii) the amendment of the W.S.D. without leave of the court

1992 TLR p25

MNZAVAS JJA, RAMADHANI JJA, MAPIGANO AG. JA

offended the provisions of 0.8.R.13 but this did not prejudice the appellant's case. A

Case Information

Appeal allowed in part.

Uzanda, for the appellant B

Mnzavas, for the respondent

[zJDz]Judgment

Mnzavas and Ramadhani, JJ.A. and Mapigano, Ag. J.A.: In the District Court of Musoma (TRAFFIC CASE NO. 5/1984) the second respondent/then the accused was C convicted of causing death by dangerous driving and driving a motor vehicle on a Public road in a manner which having regard to all the circumstances then pertaining was dangerous to the public or to any other person using the road.

Consequent to the conviction the appellant/plaintiff filed a suit (civil case No. 158/86) in D the High Court against the respondents/defendants claiming a total of over shs. 4,000,000/= as "general damages, special damages, damages for the benefit of the estate and such farther reliefs as the Court may deem fit".

When the case came up for hearing Mr. Uzanda, learned counsel for the E appellant/plaintiff, asked the Court to adopt three issues he had framed. Mr. Mnzavas for the respondents/defendants argued that the issues must include whether or not the 2nd respondent/2nd defendant was negligent in his driving. Mr. Uzanda countered that the question whether or not the second respondent was negligent in his driving was F not an issue and quoted section 43A for the Evidence Act in support of his argument.

There were also arguments before High Court whether the amended written statement of defence by the second defendant/second respondent was properly before the Court G and also

whether the signing of the written statement of defence as well as the amended written statement was proper.

After hearing arguments from both parties the learned judge held in favour of the respondents/defendants that negligence was still an issue in the civil case before him, that H the amended written statement of defence by the 2nd defendant was properly before the Court and that the signing of the written statement of defence and later the amended written statement of defence by the learned defence counsel was in order.

It is against this ruling by the High Court that the appellant has come to this Court. I

1992 TLR p26

MNZAVAS JJA, RAMADHANI JJA, MAPIGANO AG. JA

Before us Mr. Uzanda, learned counsel for the appellant submitted that the conviction A of the 2nd respondent was not disputed and as such the respondents could not deny negligence in the civil case. In support of his argument the Court was referred to the decision in Robinson. v Oluoch [1971] E.A. 376. It was also his submission that in B view of the wording of section 43A of the Evidence Act the second respondent could not deny negligence and that the most he could do was to plead contributory negligence. To fortify his argument he quoted the decision in Queens Cleaners and Dyers Ltd. v East African Community and Others [1972] E.A. 229 and Civil Appeal No. 8 of C 1989 - Benedicto Augustino & Two Others v Godwin Manase Zephania; decided by this Court. It was also the learned counsel's submission that there was no plea of contributory negligence by the respondents.

As for the signing of the written statement of defence by the advocate for the respondent D it was argued that this was contrary to 0.6 R.14 of the Civil Procedure Code. It was submitted that there was no good reason why the party concerned should not have signed the pleading.

Finally Mr. Uzanda argued that the filing of an amended written statement of defence E without first being granted leave by the Court went counter to the provisions of 0.8 R.13 of the Civil Procedure Code; and that the trial judge should have disallowed the amended written statement of defence.

It was submitted that on the pleading the respondents were liable and that the only F issue before the High Court should be the question of quantum.

In rebuttal Mr. Mnzavas, learned counsel for the respondents supported the decision of the High Court. It was submitted that section 43A of the Evidence Act deals with criminal matters and that it does not stop a party going to court in connection with a G civil suit. The learned counsel also referred us to the decision of this Court in Civil Appeal No. 8/89 (supra) in which section 43A of the Evidence Act was discussed.

As for the signing of the written statement of defence by the advocate for the 2nd H respondent it was argued that the 2nd defendant was served by substituted service by publication on the application of the appellant/plaintiff and that the advocate had to sign on behalf of the 2nd respondent/2nd defendant who was absent. In support of his argument the Court was referred to 0.6 Rules 14 and 15 of the Civil Procedure Code. I

1992 TLR p27

MNZAVAS JJA, RAMADHANI JJA, MAPIGANO AG. JA

Coming to the question of amendment of the written statement of defence without first A obtaining leave of the Court Mr. Mnzavas argued that 0.8 Rules 1 and 2 allowed the respondent to amend the written statement of defence without leave.

In the alternative the learned counsel submitted that if the Court found that he should have sought leave to amend the written statement of defence he prayed that he be B allowed to amend the written statement of defence to enable him to include the defence of contributory negligence.

After having carefully scrutinized the submissions by the learned counsels and having read the decisions quoted to us, we are far from being persuaded by Mr. Mnzavas C argument in rebuttal that section 43A of the Evidence Act only deals with criminal matters and that a decision in a criminal case can be challenged in civil proceedings. D

Section 43A of the evidence Act says:

A final judgment of a court in any criminal proceedings which declares any person to be guilty of a criminal offence shall, after the expiry of the time limited for an appeal against E that judgment or after the date of the decision of any appeals in whose proceedings, which ever is the latest, be taken as conclusive evidence that the person so convicted was guilty of that offence. F

Section 47A of the Kenya Evidence Act which is apparently analogous in its wording with section 43A of our Evidence Act was subjected to legal interpretation by the East Africa Court of Appeal in Robinson V. Oluoch [1971] E.A. 376 in which (at page 378) the Court said, inter alia: G

The respondent to this appeal was convicted by a competent court of careless driving in connection with the accident, the subject of his suit. Careless driving necessarily connotes some degree of negligence ... in those circumstances it may not be open to the H respondent to deny that his driving, in relation to the accident, was negligent. But that is a very different matter from saying ... that a conviction for an offence involving negligent driving is conclusive evidence that the convicted person was the only person whose negligence caused the I

A accident, and that he is precluded from alleging contributory negligency on the part of another person in subsequent civil proceedings.

Coming back home this Court had occasion to deal with section 43A of the Evidence B Act in Civil Appeal No. 8 of 1989 in Benedicto Augustino and two others v Godwin Manase Zephania (supra) where it said, inter alia:

... Mr. Raithatha assailed the inclusion of the result of the traffic case in a civil suit and C disagreed with section 43A of the Evidence Act used by the learned trial judge for this purpose. Section 43A in effect says that final judgment of a court in a criminal offence shall be taken as conclusive evidence that the person so convicted was guilty of that offence. Of D course it shall be taken as conclusive evidence that the person so convicted and no other, was guilty of that offence, whether another person contributed to the happening of the collision is a matter which calls for other evidence.

That being the law regarding section 43A of the Evidence Act and bearing in mind that E the 2nd respondent did not challenge ether conviction by way of an appeal and after the time limited for an appeal had expired he cannot be heard to say that he was not negligent in his driving. As he was convicted of causing death by dangerous driving it F is our view that dangerous driving connotes some degree of negligence. We agree with Mr. Uzanda's argument that the most the respondents could do is to allege contributory negligence.

As for the signing of the written statement of defence by the advocate it is our view that 0.6 R. 14 of the Civil Procedure Code gives discretion to the Court under the proviso G "that where a party pleading is, by reason of absence or for other good cause, unable to sign the pleading it may be signed by any person duly authorized by him to sign the same or to sue or defend on his behalf."

It is our view that the Indian decisions quoted to us by Mr. Uzanda, learned counsel for H the appellant are too restrictive. The learned trial judge properly exercised his discretion when he said that the signing of the pleading by the advocate for the respondents was in order.

Coming to the amendment of the written statement of defence without leave of the I court we agree that this offended the clear

provisions of 0.8 R.13 of the Civil Procedure Code but it is also our considered view A that this lapse on the part of the respondents did not prejudice the appellant/plaintiff; this is especially so taking into account that the plaintiff had been given leave to amend his plaint. We would like to mention, if only in passing, that justice should always be done without undue regard to technicalities. B

In the event it is our view that this appeal should be allowed in part. The appellant is awarded 50% of the costs which are to follow the event.

C Appeal allowed in part.

1992 TLR p29

D

[zRPz]SOFIA SAID AND YUSUF MOHAMED MUSA v AWADH AHMED ABEID & THREE OTHERS 1992 TLR 29 (CA)

Court Court of appeal of Tanzania - Dar Es Salaam
Judge Ramadhani JJA, Mnzavas, JJA, Mapigano Ag. JA

28 February, 1992 E

Flynote

Islamic law - Inheritance - Principles of inheritance where a person dies intestate;

Islamic law - Inheritance - Importance of proximity to the deceased person in intestate F succession.

-Headnote

Fatuma d/o Sefu who was a Sunni - Shaffii Moslem died intestate in 1983. After an application in the Kariakoo Primary Court by the could be heirs the Court appointed G the fourth respondent as the administrator of the deceased estate. On the same day the court made an order that the assets of the deceased be sold by auction. There was no dispute that under Islamic law Mgeni Hemedi, the surviving husband of the deceased was entitled to take half of whatever fell to be decided. The issue was the method to H be adopted for the distribution of the remaining part of the estate. Several relatives from the uterine and agnate sides competed for a share. The matter was taken to the District Court. The District Court held that since there were no Koranic heirs other than Mgeni Hemedi, heirs on the uterine side are entitled to inherit along with those on the agnate I side. The appellants are aggrieved by this decision and

they appealed to the High Court. The High Court upheld the decision of the District A Court. They appealed further to the Court of appeal.

Held: (i) In the Islamic law of succession the principle of proximity is of great importance in that within the limits of each class the nearer of blood excludes the remote; B

(ii) under the Islamic law of inheritance there are three principal classes of heirs - the "sharers" or "koranic heirs"; "Residuaries" and the "Distant Kindred". The rule regarding their right of inheritance prescribes that residuaries inherit only where there are C no koranic heirs or where the inheritable estate is not exhausted by the Koranic heirs and the distant kindred inherit only where there are no sharers of residuaries;

(iii) as the Koranic heir, Mgeni Hemedi, did not exhaust the estate the only person who has the right of inheritance in the circumstances is a residuary i.e. the second appellant. D The rest of the claimants have no right under Islamic law.

Case Information

Appeal allowed.

Mchora, for the appellants E

Ngasala, for the respondent

[zJDz]Judgment

Mapigano, Ag. J.A. and Ramadhani and Mnzavas, JJ.A.: This case concerns the estate of Fatuma d/o Sefu, hereinafter "the deceased", who died intestate in 1983. The F deceased was a Sunni - Shaffii Moslem, so the distribution of the estate, of which two houses are the main assets, is governed by the rules of that sect.

On 23/11/83 before the Primary Court at Kariakoo in Dar es Salaam the two appellants and three other persons who claimed to be heirs proposed that Mohamed G Ussi, the third respondent herein, be appointed administrator of the estate. But on 3/12/83 it pleased that court that the administration of the estate be granted to Saidi Mohamed Harriz, the fourth respondent. On the same day the court made an order that the assets be sold by auction.

The deceased was the wife of Mgeni Hemedi, and there was on agreement by the H claimants, and it was in full accord with the law of the estate, that Mgeni Hemedi, as surviving spouse, is entitled to take half of whatever fell to be divided. There was however a dispute as to whether

Mohamed Ussi, Shaban Abdul and his sisters Tatu I Abdul and Fitina Abdul could be called to the succession along with the appellants Sofia Saidi and Yusuf Mohamed Mussa. The
1992 TLR p31
MNZAVAS JJA, RAMADHANI JJA, MAPIGANO AG. JA
contention of the appellants was that they were the only persons, apart from Mgeni A Hemedi, who could succeed to the estate, by reason of agnation. The appellants took the dispute to the District Court of Ilala although the matter could and should have been adjudicated upon by the primary court first, in terms of the Fifth Schedule to the B Magistrates' Courts Act, 1963, which was then in force.
Mr. Machano, learned advocate, who appeared for the appellants submitted before the district court that Mohamed Ussi, Shaban Abdul and his sisters are excluded from succession on two grounds: first, they are kindred on the uterine side, which indeed C they are, and Mr. Machano referred the court to a broad statement made by Sheikh Ali bin Hemedi El-Buhuri in his handbook Mohamedan Law of Inheritance: secondly, they were "too far in the genealogical line".
However, another handbook on the same subject written by an equally renowned D Islamic law jurist, Sheikh Abdullah Salehe Farsy, was available to the senior district magistrate, and the learned magistrate understood Sheikh Farsy as holding the contrary, namely, that in a situation like the one is this case the net estate is divided to both agnate and uterine heirs. E
In his judgment dated 13/7/84 the learned magistrate preferred the view taken by Sheikh Farsy and held that since there was no Koranic heirs other than Mgeni Hemedi, which was common ground, heirs on the uterine side are entitled to inherit along with those on the agnate side. He also took into consideration the fact, as he found it, that F the uterine claimants were more intimate to the deceased and had cared for her during her old age and incurred a substantial amount of money on her funeral. He expressed no opinion on the respondents' argument that since the mother of the deceased would have taken of half of the estate, if she had survived the deceased, those who would have G inherited the mother's estate are not debarred from distribution. And he did not pronounce on the portions to be given to the claimants.
They, innuendo the appellants, were aggrieved by the decision of the district court and they appealed it to the High Court. In his judgment dated 20/12/86, Bahati, J. upheld H that decision. What is before us, therefore, is a second appeal.
On behalf of the appellants Mr. Mchora, learned advocate, has set out three grounds of appeal in the memorandum viz: I
1992 TLR p32
MNZAVAS JJA, RAMADHANI JJA, MAPIGANO AG. JA
A 1. That the learned judge erred when he upheld the decision of the lower courts which held that heirs on the uterine side may inherit along with those on the agnate side where the deceased is a Moslem and his or her estate has to be administered according to Islamic law.
B 2. That the learned judge misdirected himself when he upheld the reasoning that Sheikh Farsy's opinion in respect of the matter was more appropriate and fitting than that of Sheikh Buhuri.

C 3. That the learned judge erred when he held that the appeal had no merit.

It seems to us that these grounds admit of being considered together. We have, D however, failed to understand why the first, second and fourth respondents have been made parties to these proceedings.

Before we heard the appeal we were under the strong impression that these grounds of appeal are confined to the question whether agnate heirs were, at law of the estate, E superior to uterine heirs, and in actual fact that was the burden of Mr. Machano's address in the district court. But in his submission before us Mr. Mchora changed tuck. He criticized the learned judge in the High Court for failing to consider the proximity to the deceased of each of the claimants. He concluded his speech by asking us to F remand the case back to the primary court for it to take additional evidence on the point and determine the same.

Learned counsel for the respondents, Mr. Ngasala, supported the concurrent finding of the court below, saying that the courts were entitled to accept Sheikh Farsy's opinion, G which opinion, he said, is grounded on equity. With regard to the question of proximity, Mr. Ngasala replied that the matter was not raised in the courts below, though he conceded that it is of immense importance in the scheme of Islamic succession.

With due respect to Mr. Ngasala, it is not true that the question of proximity was not H raised in the courts below. It was raised in the district court. We think that that is precisely what Mr. Machano had in mind when he submitted that the respondents are "too far in the genealogical line", about which the learned magistrate said nothing. I

It is beyond question that in the scheme of Islamic succession

the principle of proximity is a vitally momentous one. It is a scheme that has held true A for centuries, and one that is applicable to all classes of heirs so that within the limits of each class the nearer of blood excludes the more remote. We are disposed to think that even Farsy's statement is subject to that principle.

Another scholar, Sir Roland Knyvet Wilson holds with the view expressed by Sheikh B Buhari about agnate superiority. In his Digest of Anglo - Muhammadan Law, 5th edition, Wilson writes at page 62:

C Special rules, based directly or by analogy on Koranic texts, govern the cases of females standing alone in the nearer degrees, and beyond the degree of sister patriarchal usage prevails in all Sunni schools to the extent of totally excluding females and blood- relations of either sex connected with the deceased through females, so long as there is any male D collateral, tracing up and down through an unbroken line of males - in other words any agnate, however remote.

In any event, the claims of the heirs in this case must be considered in the light of their classes, which, in our view, is determinative of the claims. Islamic lawyers distinguish E three principal classes of heirs and this also has held true down through the ages.

The first principal class is called "Sharers" or "Koranic heirs" of which, as stated, F there is only one in this case, i.e. Mgeni Hemedi. The second is called "Residuaries" or "Asabah" and looking at the Table of Residuaries in Mulla's Principles of Mohamedan Law, 14th edition at page 69A,

there is only one such heir among the claimants in this case i.e. the second appellant Yusuf Mohamed Musa, he being an agnate nephew of G the deceased. The third class is commonly referred to as "Distant Kindred" and this is the class to which the rest of the claimants, including the first appellant Sofia Saidi, belong.

Germane to these classes is the rule of exclusion or postponement. The rule prescribes H that Residuaries are called to succession only where there are nos Sharers or where the inheritable estate is not exhausted by the Sharers; and the Distant Kindred are called to succession only where there are no Sharers of Residuaries: See Mulla, sections 65 and 67 (1). I

Accordingly, inasmuch as there is only one Koranic heir and

1992 TLR p34

there will be a residue left after satisfying his claim, the residuary, i.e. the second A appellant, should be called to succession. And inasmuch as there is a residuary, nothing can devolve upon the rest of the claimants. That is the legal position, and much as we may appreciate the affection and generosity which some of the claimants had displayed toward the deceased, there is nothing we can do. B

For the benefit of some of the claimants we conclude by making this observation: it is a wrong thought that they can stand in the place of the mother of the deceased, for the doctrine of representation is alien to Islamic intestacy. So it matters not that the mother of the deceased would have been called to the succession of the estate, if she had C survived the deceased, and that upon her death the claimants would have partition in her inheritance. As Wilson points out in his Digest at page 64, the case of Prophet Mohamed himself poignantly exemplifies the true legal position. He writes: D

> Thus, in Muhammad's own case, his father Abdullah having predeceased him (in fact, having died before he was born) while the grandfather was still living, the other sons of the grandfather divided the whole of the latter's inheritance to his total exclusion, and he E owed his maintenance and start in life to the kindness of one of his uncles.

Wilson presumes that this system satisfied the Prophet's sense of justice though he F personally suffered by it, since he did not alter it when he was in a position to do so. And of course it is beyond our competence to change that system.

In the ultimate event this appeal succeeds, and we allow it with costs. In view of what we have remarked about the joinder of the first, second and fourth respondents, we G order that the costs be paid by the third respondent Mohamed Ussi alone.

Appeal allowed. H

1992 TLR p35

A

[zRPz]OMARY MOHAMED v AWADH ABDALLAH 1992 TLR 35 (HC)

Court High Court of Tanzania - Tanga

Judge Kyando J

28 February 1992
Flynote
Land law - Co-ownership - Division of the house in terms of its value and option to B purchase the other's share.
-Headnote
The plaintiff and the defendant, who are cousins, jointly owned on equal share, a plot and a house located in Ngamiani area in Tanga municipality. They both lived in the said house with their relatives. After some time a sharp disagreement arose between them C and the plaintiff sought for and got alternative accommodation. The plaintiff brought this action requesting the court to either sell the house and have the proceeds divided equally between them or any of the parties should purchase the share of the other. D
Held: (i) In the circumstances of the case the defendant was not responsible for the conflict which arose in relation to the occupation and use of the house;
(ii) the fairest method, for which the parties also agreed, was the division of the E house in terms of its value and to give the parties an option of purchasing the other's share.
Case Information
Order accordingly.
[zJDz]Judgment
Kyando, J:. The plaintiff and the defendant in this case are cousins. Their mothers F are full sisters. They jointly bought Plot No. 8, Bloc 46, Barabara ya 8, Ngamiani, Tanga Municipality and constructed, jointly, a house on it. There had been an old house on the plot, which had belonged to their mothers. They demolished the old house and G constructed their present house in its place. Construction commenced in 1974 and was completed in 1979. It is apparent that in the house which was demolished their respective parents and other relatives, such as their mothers' sisters and an uncle lived in, together with the parties hereto. On completion of construction of the new house H the plaintiff and the defendant divided between themselves rooms in the house and they each had equal portions in the house. They continued to share their respective portions with their relatives, e.g. on the part of the defendant, with both his parents, and on the part of the plaintiff, with his mother, his mother's sisters and an uncle of the parties. I
1992 TLR p36
KYANDO J
They (the parties) are now involved in a wrangle over the house. The plaintiff in his A plaint prays that it be sold, at a public auction, and the proceeds be divided equally between them, or, alternatively, any of the parties purchase the share of the other by paying him shs. 750,000/= and any one party whose share is purchased should vacate B the house "the soonest."
The plaintiff alleges that what brought about the conflict over the house was the defendant's breach of their agreement whereby the (the defendant) let into the house "his relatives other than his families, to wit he let in one (1) Addarahman Abdala with his C wife and 2 children (2) Ramadhani Abdalla with his wife and 2 children." (See para 7 of the plaint). In paras 8 - 14 of the Plaint, the plaintiff states that:

8. That because of this influx of this large number of people and whose character and D behaviour was quite unbearable, the plaintiff found the said so he protested against this move by the defendant but the latter took no positive step to rectify the situation.

E 9. That finding that he could not reside at the house with his family, the plaintiff decided to and rented his part of the house.

10. That the plaintiff's tenants who were sociable people could not stay in the house for F long due to molestation and annoyance by the defendant and his relatives.

11. That since the end of 1983 to date the plaintiff has not been able to use his part of the house and so the same has remained idle. G

12. That the plaintiff has made proposals to the defendant that because the purpose of acquiring the house and rebuilding it has been defeated, the same should be sold by H public auction or one party purchase the other's share in the said house, the defendant has been unreasonably resisting any of these alternatives.

13. That the current market value of the house according to offers made by prospective I buyers is shs. 1,500,000/=.

1992 TLR p37

KYANDO J

14. That the plaintiff is willing and ready to buy the defendant's share in the house by A paying him shs. 750,000/=.

In his defence the defendant stated that it is not true that he let into the house people other than members of his family. He said the people concerned are his full brothers B Abrahaman Abdalla and Ramadhani Abdallah.

In paper 5,7,8, 9 and 10, of his written Statement of defence the defendant states:

5. The defendant denies para 8 of the plaint for the reasons that there were not large C numbers of people as stated by the plaintiff more than my young brothers as mentioned in para 4 of this written statement of Defence.

7. Paragraph 10 of the plaint is completely denied, there were not any molestation and D annoyance to his tenants. Further more he reached (sic) this matter to the police and hence to court complaining that I threatened his tenants Criminal Case No. 508/86 in the District Court Tanga refers. Those tenants called to court to give their evidence E about the complaint of the plaintiff, but they told the court that there were no any trouble or molestation or annoyance made by the defendant to them.

8. Paragraph 11 is also denied as nobody prevented him to use his part, he is living in F his house at Street No. 7 that is why he locked his rooms.

9. The defendant denies para 12 of the plaint, first of all I lived in that house since 1970 until now, and I have no other house to live in. I agree to purchase the share to the G plaintiff, but not by (sic!) black market as this matter has reached to the Resident Magistrate - in - charge, Tanga and he wrote a letter with Ref. SRM CONF/CIV/3/12 of 27/3/1987 to the Regional Valuation Officer to visit the house and make his value H (sic!) but to date no reply effected.

10. Paragraph 13 of the Plaint completely denied, the said house cannot reach (sic!) even half the amount as stated I

1992 TLR p38

A by the plaintiff, and that is why I emphasise to be valued by value (sic) Officers. The Written Statement of Defence is drawn by a lay hand. This is apparent from a mere glance of it. Nonetheless, while the defendant agrees with the proposal to have the B house divided into shares in terms of value and that one of them, the parties, should purchase the other's share and keep the house, he disagrees with the idea of the house being auctioned. He prefers that it be valued by a Government Valuer and then half of the value be paid to one who will not keep the house by the one who will keep it. He C suggests that he should be the one to buy out the plaintiff as he, he said, has no other house to live in while the plaintiff has the one he moved to when he shifted from the house in dispute in this case. The defendant also denies that he is the one who is responsible for the dispute which arose between the parties in relation to the house. D

The following issues were agreed on by the parties:

(1) Should the house be sold by public auction or one party should pay the other part of the amount shown in the Valuation Report? E

(2) What reliefs are the parties entitled to?

On the first issue, the plaintiff proposes sale of the house because, as shown, he F considers that the defendant is the one to blame for the dispute which has arisen in relation to the house. However, during the hearing the defendant contended that the plaintiff is an over sensitive and arrogant person; he took offence at very trivial matters which his (defendant's) relatives did. He said the plaintiff would even brag that he was G light complexioned while the defendant and his relatives were dark skinned (both the parties are Arabs). He bragged too, according to the defendant, about his having money while the defendant and his kins did not have any.

In my opinion on the first issue when the house was constructed it cannot be said that H it was meant for occupation exclusively by the parties and their families only - families in the European or white man's sense of the word. I think it was intended for occupation by the parties and their relatives as it now is. This is event from the fact that each of the parties had his relatives in the house right from the time it was ready for occupation. In I fact even before then, in the old house, the parties lived with relatives. The

1992 TLR p39

KYANDO J

defendant lived with both his parents in the house. It would not therefore be any A wonder if his brothers, Abdarahaman Abdallah and Ramadhani Abdallah came to the house and joined their parents and brother, the defendant, even with their children and wives, there. I am of the view then that the coming to the house of the defendant'a brother was not in itself a breach of any agreement in relation to the occupation of the B house by the parties. I am of the view, too, that the coming to the house by the defendant's brother is not a matter for which the defendant is to be blamed in relation to the conflict which arose. The conflict arose due to poor relations between the plaintiff and those brothers and I think it may be true that it was because of the

plaintiff's C oversensitivity, hatred and arrogance as stated by the defendant in his evidence. I will not therefore hold the defendant in any way to blame for the conflict which has now arisen in relation to the occupation of the house.

The above being the position, I think it is then for this court to adopt the fairest D method of dealing with the house as between the parties. Selling it at a public auction would certainly render the defendant homeless, for no fault, as held, of his. The plaintiff on the other hand has another house and does not live in the suit house. I am of the view then that selling the house by auctioning it will result in grave injustice to the defendant. E

There is a method which both the parties agree to. The plaintiff, of course, seems to have developed second thoughts about it and now insists on sale by public auction. The method is the division of the house in terms of its value, and then giving the parties an F option of purchasing the other's share and the one whose share has been purchased to move out of the house. The plaintiff says that if this is the option adopted, he should be the one to be given the opportunity to buy.

I think this method is fair. As I have said the plaintiff pleads it in his plaint as an G alternative relief. He is bound by his pleading and he cannot now wriggle out of them as he now attempts to do. Also I do not see why he should be the one to be given the first option to buy. As I have sid the defendant is not to blame for the conflict which has arisen in relation to the house. Also he is the one now in occupation of the house. I H think it would be fair therefore to let him see if he can purchase plaintiff's share first and if he fails then the plaintiff should be given the chance to purchase defendant's share. In the result then, the house is to be divided in two shares in terms of value. Then the defendant is to be given the first chance to purchase the plaintiff's share. If he fails to I do so within three months

from the date of the delivery of this judgment, then the plaintiff is to purchase A defendant's share. The house was valued by a Government Valuer at Shs. 2,077,440/= on 26th June, 1991 (see his Valuation Report No. VAR/C/TAN/I/VOL.XI of 25th June, 1991) and that is to be taken as the present value of the house. The parties, or B anyone of them, may reapply to the court for revaluation of the house by the Government Valuer before any purchase of the shares is done. The new value will then be the basis for dividing the house into the shares I have ordered here.

I have made the above order because I am satisfied on the evidence that the parties C cannot possibly continue to co-own the house. They are in serious conflict over it now, and it is best that one of them ceases to be associated with it altogether. This will disengage them from further contacts over the house, which contacts have been the reason for the present conflict between them.

In the decision which I have made, I do not think either party can be said to have won D as against the other. I therefore will not make any order as to costs.

E Order accordingly.

F

Court High Court of Tanzania - Mwanza
Judge Masanche J

11 March 1992
Flynote
Criminal law - Obtaining by false pretence.
Criminal Practice and Procedure - Sentencing - Omnibus sentence - Offences committed G in close association with each other - Whether consecutive or concurrent sentence - Rectification of sentencing procedure by an appellate court.
-Headnote
Appellant was charged with and convicted of obtaining money by false presences H contrary to section 302 of the Penal Code. It is alleged that the appellant went around in the township of Mwanza soliciting for money, especially from Asian businessmen, saying that he was sent by Government officials to collect such monies for Mwenge festivals. I He collected money from five persons. The sentence he got was one of three years for all the offences.
1992 TLR p41
MASANCHE J
Held: (i) It is unlawful to award omnibus sentence. Each count must receive a A requisite sentence. The magistrate may then decide to order the sentences to either run concurrently or consecutively depending on the nature of the charges and the evidence unfurled at the trial [See R. v White [1972] Crim L.R at 193];

(ii) the three year sentence imposed on the appellant was not on the high side. For B the record purposes the sentencing procedure adopted by the trial magistrate must be rectified;

(iii) On each of the five counts the appellant be sentenced to three years imprisonment. These sentences should run concurrently to each other and hence the appellant should serve three years imprisonment. C
Case Information
Appeal dismissed.
[zJDz]Judgment
Masanche, J.: Appellant Jumanne Ramadhani was charged with and convicted of D obtaining money by false presences contrary to section 302 of the penal code. He had been charged along with another person called Mohamed Ally, Jumanne Ramadhani, the present appellant, was the second accused, according to the charge sheet dated 11/8/86, and Mohamed Ally was the first accused. Mohamed Ally got acquitted on a E benefit of doubt. The present appellant got convicted on all the counts he had been charged with, and was sentenced to an omnibus sentence of three years imprisonment.
I must straight away say that it is unlawful to award omnibus sentence. Each count F must receive a requisite sentence. The magistrate may then decide to order the sentences to either run concurrently or consecutively, depending on the nature of the charges and the evidence

unfurled at the trial. A commentary to the case of R. v White [1972] Crim. L.R., at 193, a case decided by Queens Bench Divisional Court G comprising Lord Widgery C.J., Sacks L.J., and Ackner J., says this:

The general principle that offences committed in close association with each other should not normally attract consecutive sentences applies only where the offences concerned H are broadly similar in character or related in terms of subject - matter. Where two wholly different offences are committed at the same time, even against the same victim, consecutive sentences may properly be imposed. I

1992 TLR p42

MASANCHE J

In that case, a Jamaican got convicted on five counts of obtaining property by A deception and one of rape. He got money by telling the victims that he could cure them of their evil spirits. From one of them, a woman, he demanded sexual intercourse as a cure. Consecutive sentences were imposed and upheld.

Yet, in another commentary, in [1970] Crim L.R., at page 593, it is said, on B sentences:

As a general rule, consecutive sentences even though imposed for quite separate offences should not be added together to produce an aggregate sentence which is totally C out of proportion to the gravity of the individual offences, or the most serious of them. A court is entitled to reduce what would be the logical total sentence if a strictly mechanical approach were followed, if this is necessary to produce a reasonable result. D

The general rule, and the pattern in most cases is for the court to impose sentences on each count and then order that the sentences should run concurrently.

The appellant, as Mr. Kabonde, the learned state attorney has pointed out, is E appealing against sentence. He is not aggrieved at the conviction. Indeed, he could not complain against the conviction on such tangible evidence that was unfurled at the trial. Appellant went around in the township of Mwanza soliciting for money, especially F from Asian businessmen, saying that he was sent by Government officials to collect such monies for Mwenge Festivals. Almost all the Asian businessmen who parted with money identified him in Court to be the very fellow who had gone around to collect such moneys. In total, he collected about Shs. 10,000/=. He then got caught and was sent before law enforcing organs; then he got charged and got convicted. The sentence he G got was one of three years for all the offences put together. Such a 3 year jail term was not on the high side.

However, for record purposes, I have to rectify the sentencing procedure that the learned magistrate had adopted. I order that on each of the five counts the appellant H be sentenced to three years imprisonment. But, these sentences should run concurrent to each other. That is to say, the appellant only serves three years imprisonment.

I Appeal is dismissed.

1992 TLR p43

A

[zRPz]SEIF SHARIF HAMAD v S.M.Z 1992 TLR 43 (CA)

Court Court of Appeal of Tanzania - Zanzibar
Judge Ramadhani JJA, Mnzavas JJA, Mapigano Ag. JA

13 March 1992
Flynote
Criminal Practice and Procedure - Jurisdiction - Ruling on preliminary point relating to B jurisdiction of trial court - Whether appealable - Whether Court of Appeal has jurisdiction to entertain the appeal.
Criminal Practice and Procedure - Appeal - Jurisdiction - Section 6(2) of the Appellate C Jurisdiction Act, 1979 - Right to appeal.
-Headnote
After preliminary inquiry the appellant was committed to the High Court for trial. A regional magistrate, Mr. Mmilla on extended jurisdiction was duly assigned to hear and determine the case. Before hearing commenced the appellant raised a point of D jurisdiction of the trial court. The court ruled that it had jurisdiction to try the case. The appellant filed an appeal with the Court of Appeal challenging the ruling that the regional magistrate, with extended jurisdiction, was legally competent to conduct the trial. E
Before the Court of Appeal could entertain the appeal it considered whether it had jurisdiction to hear the appeal in view of section 6 of the Appellate Jurisdiction Act, 1979 and also whether the appellant was competent to lodge the appeal. F
Held: (i) The ruling of Mr. Mmilla was a specie of interlocutory order, and following our decision in Alois Kula we have no jurisdiction to hear an appeal against it under the Appellate Jurisdiction Act, 1979;

(ii) the Court of Appeal has no inherent power to exercise jurisdiction where no G right of appeal is provided;

(iii) our appellate jurisdiction derives from the Appellate Jurisdiction Act, 1979. Section 6 deals with criminal appeals like this one. Section 6(2) expressly permits only the D.P.P. to appeal against any order of the High Court or subordinate court in the H exercise of extended jurisdiction;

(iv) The appellant has no right of appeal.

Case Information
Appeal incompetent and premature. I
1992 TLR p44
RAMADHANI JJA, MNZAVAS JJA, MAPIGANO AG. JA
[zJDz]Judgment
Ramadhani and Mnzavas, JJ.A. and Mapigano, Ag. J.A.: The appellant, Seif A Sharif Hamad, is challenging the ruling of Mr. Mmilla, Regional Magistrate, in the exercise of extended jurisdiction, that he has the jurisdiction to try the appellant.
After the conduct of a preliminary inquiry the appellant was committed to the High B Court for trial. His Lordship, the Chief Justice of Zanzibar, Mr. Hamadi, assigned the case to Mr.

Mmilla on extended jurisdiction. The appellant raised one major preliminary point of jurisdiction at the trial, and that was whether Mr. Mmilla was legally competent to conduct the trial.

This appeal was adjourned on the day it was first set for hearing. This court then C required the counsel for the appellant, as well as the counsel for the respondent/S.M.Z. to come to address it, when hearing is resumed, on whether or not this Court has jurisdiction to hear the appeal in view of Section 6 of The Appellate Jurisdiction Act, D 1979 as interpreted in our recent decision in Alois Kula and Another v R., Criminal Appeal No. 121 of 1991 (unreported).

Before us, was Mr. Nowrejee, learned counsel. He had two main submissions.

First, he said that the decision in Alois Kula is to the effect that this Court does not E have jurisdiction to hear appeals against interlocutory orders. He submitted that the present appeal is not against an interlocutory order but against a decision on a preliminary point of law. He argued that at the stage reached before the Regional Magistrate no plea had been taken and assessors had not been chosen. In short the F trial had not started. To him an interlocutory order is one made after a trial has commenced but before it has been concluded. He argued that this appeal is founded on fresh proceedings before Mr. Mmilla even before the trial had started. So, he G concluded, what is before us is an appeal against a preliminary point of law not an interlocutory order.

His second submission was that this Court has inherent and or residual powers of appeal where the proceedings before the lower Court were a nullity or where jurisdiction was lacking. He cited David Mbowa Ndele v R. Criminal Appeal No. 1 H of 1989 (unreported) as his authority. In Ndede the Court of Appeal of Kenya used its inherent or residual powers to hear an appeal against a conviction founded on a plea of guilty while that is prohibited by Section 348 of the Criminal Procedure Code which only allows appeal against sentence. I

1992 TLR p45

RAMADHANI JJA, MNZAVAS JJA, MAPIGANO AG. JA

Mr. Nowrejee then urged us to use our inherent and residual powers to hear this A appeal.

On behalf of the respondent/S.M.Z. was Mr. Mutembei, learned State Attorney. He submitted that the ruling of Mr. Mmilla was interlocutory. To him an interlocutory order is one which is made by a court at any stage of the case but which does not finally B determine the case.

Mr. Mutembei argued that the appellate jurisdiction of this Court is a creation of a statute, The Appellate Jurisdiction Act, and that Section 6, does not admit of an appeal against an interlocutory order. Mr. Mutembei relied on Alois Kula and A. - G v. C Shah [1971] E.A. 50, which we have cited in Alois Kula, as his authorities for his submission.

As for the issue of inherent and residual powers of this Court, Mr. Mutembei said that the division in Ndode supports that in Alois Kula. The learned State Attorney submitted that the prohibition on appeal against conviction after a plea of guilty is not absolute D and it was so said in Ndode. But here, Mr. Mutembei argued, the prohition on appeal against interlocutory order is absolute.

In reply Mr. Nowrejee stuck to his guns that there was no interlocutory order. E

Then Mr. Nowrejee contended that what gives this Court its jurisdiction is section 4 of the Appellate Jurisdiction Act which is broader in scope than Section 6. He admitted that Section 6(2) permits the D.P.P. only, and not the other party, to appeal against any order of the High Court. But he submitted that was not so in every instance. Where F the issue is nullity of proceedings or want of jurisdiction there are inherent and residual powers of appeal. Mr. Nowrejee pointed out that Alois Kula did not deal with these two issues so it is distinguishable.

Mr. Nowrejee also argued that Section 6 of the Appellate Jurisdiction Act does not G give a right of appeal to a party other than the D.P.P. by implication only and that the right of appeal is not expressly denied. However, he added, the prohibition of appeal against as conviction based on a plea of guilty, as provided in section 324 of the Criminal Procedure Decree, like section 348 of the Kenyan Criminal Procedure H Code, is expressly prescribed, So, he submitted, if, notwithstanding an express prohibition, an appeal is entertainable, then it is a fortiori case where the prohibition is by implication.

The first issue we have to determine is whether Mr. Mmilla's order was an I interlocutory order or not.

1992 TLR p46

RAMADHANI JJA, MNZAVAS JJA, MAPIGANO AG. JA

Blacks Law Dictionary (Revised 4th ed) has this to say on interlocutory order: A

> An order which decides not the cause, but only settles some intervening matter relating to it ... B

Now, what was the "cause" before Mr. Mmilla? Was it whether or not he had jurisdiction, and for that matter jurisdiction to do what? Or was the cause before him whether or not the appellant was guilty of the charges facing him? We are not a shade in doubt that the guilty or the innocence of the appellant was the cause before him, and C that the preliminary point was raised just when he was about to try that cause.

It is plain that Mr. Mmilla's ruling did not decide the cause. The ruling, in our view, was a specie of interlocutory order, and following our decision in Alois Kula we have no D jurisdiction to hear an appeal against it under The Appellate Jurisdiction Act, 1979 of which we shall have more to say in a short while.

The second issue which calls for our decision is whether or not we have residual or inherent powers over and above these given by the statute. E

This was categorically settled by our predecessor, the Court of Appeal for Eastern Africa in Rex v John Christopher Nealon (1950) 17 E.A.C.A. 120 at 121 thus:

> F This Court has no inherent power to exercise jurisdiction where no right of appeal is provided.

That was reiterated by that Court twenty years later in A - G v Shah thus:

> G It has long been established and we think there is ample authority for saying that appellate jurisdiction springs only from statute. There is no such thing as inherent appellate jurisdiction. H

And that is what we, also after another twenty years, have maintained in Alois Kula.

Our appellate jurisdiction derives from The Appellate Jurisdiction Act, 1979. Section 6 deals with criminal appeals like this one. Section 6(2) expressly permits only the I D.P.P. to appeal against any order of the High Court or subordinate court in the

exercise of extended jurisdiction. Thus any party other than the D.P.P., like the A appellant here, has no such right.

As we have mentioned Mr. Nowrejee submitted that that denial does not extend to issue of nullity of proceedings or jurisdiction. With respect that is not so and has never been so as this extract from R. v Nealon at page 121 vividly demonstrates: B

But learned Crown Counsel relying on Rex v Sironga has argued that the revisional order in this appeal was made without jurisdiction and is a nullity so that in his submission the order appealed from was not a valid order in revision and in his submission an appeal C lies on point of jurisdiction.

The Court then went on to say that:

It may well be thought most extraordinary that no appeal should lie from an order D purporting to be made in revision either on a point of law or on point of jurisdiction, but we must take the law as we find it and under the law the right of appeal to this Court from the Supreme Court of Kenya exists only in cases where a right of appeal is provided by the E laws of Kenya and there is no such provision applicable to this case. This Court has no inherent power to exercise jurisdiction where no right of appeal is provided. (emphasis provided).

If we substitute Tanzania for Kenya wherever that name appears and the High Court F for the Supreme Court, then the analogy is complete.

The reasons for prohibiting a party other than the D.P.P. from appealing against interlocutory orders are not far to seek. The criminal proceedings would undoubtedly G be very protracted as an accused person would be attracted to appeal against every order.

That ought to have disposed the appeal but from brotherly respect to our colleagues in the Court of Appeal of Kenya we have to say a thing or two on Ndede.

First, we could say that the decision is of mere persuasive authority. That is an easier H thing to do but it is escapist. So, secondly, we say that even this Court has done the same in similar cases like Ndede because then the appellant comes with reasons saying that "I did not plead guilty" or words to that effect. The Court then has to assess the plea whether it was one of guilty or not. If it was of guilty then that disposes of the I matter forthwith, because there is

no right of appeal against a proper plea of guilty. A

We want to make it abundantly clear that our decision does not finally determine the rights of the appellant. After the trial before Mr. Mmilla is over, and if the appellant is aggrieved, he can still come back and raise the issue of jurisdiction as one of his grounds B of appeal. So this appeal is incompetent and premature and we dismiss it.

C Appeal dismissed.

1992 TLR p48
D
[zRPz]THE REPUBLIC v MGEMA MANYUYA 1992 TLR 48 (HC)

Court High Court of Tanzania - Tabora
Judge Korosso J

26 March, 1992
Flynote
Criminal Practice and Procedure - Charges - Dismissal - Before lapse of 60 days illegal E and void - Court may refuse adjournment - S. 225 (4) Criminal Procedure Act, 1985.
-Headnote
In a trial before a District Court the presiding magistrate dismissed the charge and F discharged the accused under section 225(4) of the C.P.A after 55 days since commencement of proceedings. On revision the judge of the High Court found that the dismissal and discharge were unlawful and void, but observed that court have power in appropriate cases to refuse further adjournments of a case. G
Held: (i) The order for dismissal of the charge and discharge of the accused was null and void. Such order can only be made after the expiry of sixty days;
H (ii) in the application of the provisions of section 225(4) (a) of the CPA, the court has a discretion to refuse to adjourn a case even where a certificate has been filed by the Regional Crimes Officer if satisfied that the certificate has not been able to show an existence of a real need for an adjournment or the grounds are unreasonable. I
1992 TLR p49
[zJDz]Judgment
Korosso, J.: This revisional file was ordered to be opened with a view to satisfying A this Court as to the legality or propriety of the learned Principal District Magistrate order dated 27/3/1991 in which he dismissed the charge and discharged the Accused for failure by the prosecutor to file a certificate of the Regional Crimes Officer, Shinyanga, asking for an adjournment of the case for a further aggregate period of 60 days as B provided under the provisions of section 225 (4) of the CPA No. 9/85.
Mr. Oswald, the learned State Attorney, who represented the Republic at the hearing of the revision, submitted that the initial 60 days having not elapsed, the learned trial Magistrate was not legally justified in dismissing the charge and discharging the C Accused.
Indeed, the learned State Attorney, is right. The Accused had the charge formally read over to him on 31/1/1991 so that on 27/3/1991 when the charge was dismissed, there had elapsed 55 days or so in the aggregate. Self-evidently, the order was made prematurely. The discharge of the Accused was consequently illegal and the order a D nullity.
Be as it may, the learned trial Magistrate needs to be commended for being so mindful about the magnitude of the provisions of section 225 (4) of the CPA. There can be no room for

compromise in the application of section 225(4) of the CPA. I may further E observe that in the application of the provisions of section 225 (4) (a) of the CPA, the Court has a discretion to refuse to adjourn the case even where a certificate has been filed by the Regional Crimes Officer if satisfied that the certificate has not been able to F show an existence of a real need for an adjournment or the grounds are unreasonable. Take this case in point as an example. The Accused was charged with the offence of giving false information to Mr. Magige, the Primary Court Magistrate at Bumela Primary Court on 14/90. In a case of this nature the said Magistrate was the only key witness. G It is difficult to really believe that it was not possible to secure the attendance of the Primary Court Magistrate, working in the same District before the District Court.

There may also arise a situation where all the witnesses but one have testified. If the Court honestly believes that the evidence of the remaining witness will be just like "a H fly on the coach-wheel', so that the case is bound to stand or fall on the evidence given thus far, it will be doing justice to the case to refuse the application. The position under the provisions of section 225 (4) (b) and (c) of the CPA has no relevancy to my foregone observations for under those I

paragraphs (b) and (c) adjournment is obligatory once appropriate certificates are A filed on time.

I would emphasize here that the provisions of section 225(4) (a) (b) and (c) of the CPA are essentially intended to control the speed of hearing criminal cases so that proceedings are concluded within ascertainable period of time. The section is just like B a reins which a rider uses to control the direction and speed of an unruly horse.

The final question is whether or not this Court should order the arrest of the Accused so that the proceedings resume from where they stopped. C

I find myself overwhelmed by reluctance as a result of my surprise I expressed 'supra' because of the prosecution's failure to secure the attendance of Mr. Magige, the Primary Court of Bumela Primary Court, for 55 days.

Under the circumstances of this case, it would be violating the provisions of Article 13 D (6) (b) of the Constitution of 1977.

Consequently, I invoke the inherent powers of this Court by dismissing the charge and discharging the Accused.

E The Lower Court's order is quashed.

F

[zRPz]MASUDI ALLY v CHIKU MASUDI 1992 TLR 50 (HC)

Court High Court of Tanzania - Tabora
Judge Korosso J

10 April 1992

Flynote
Customary Law - Inheritance - Rights of children to inherit parent's property. G
-Headnote
This is an appeal by the appellant challenging the decision of Kigoma District Court which rejected his claim for a right to inherit from a deceased person who was not his H relative.
Held: Under customary law only children of the deceased have the right to inherit from their deceased's parents property.
Case Information
Appeal dismissed. I
1992 TLR p51
[zJDz]Judgment
Korosso, J.: This is an appeal lodged by the Appellant challenging the decision of A the Kigoma District Court which reversed the decision of the Ujiji Urban Primary Court.
The Appellant was neither the son nor the relative of the Respondent's late father who exclusively owned the disputed residential house in Tabora Municipality. B
According to the para 26 of the Second Schedule of Declared Customary Law G/N 436/63, it is the children - them alone - of the Deceased that are customarily entitled to inherit the entire property, (without exception), of their late father. The appellant having been a complete stranger to the family of the Respondent's late father, he is equally a C stranger to the property of the Respondent's late father.
As it were true that the Respondent's late father had ever inherited the property of the Appellant's late father in 1956 when his father died, the Appellant would naturally have D sued the Respondent's late father during his lifetime until in 1990 when he passed away. Seeing that the Respondent's father is no longer with us, he decided to test the wisdom of courts of law.
On the foregone grounds, I dismiss the appeal in total with costs. E
Appeal dismissed.

F
[zRPz]PROTAS JOHN KITOGOLE AND ANOTHER v REPUBLIC 1992 TLR 51 (CA)

Court Court of Appeal of Tanzania - Mbeya
Judge Makame JJA, Kisanga JJA, Omar, JJA

April 21, 1992 G
May 28, 1992
Flynote
Evidence - Circumstantial - Whether and when may ground a conviction. H
-Headnote
The appellants were charged with and convicted of murder by the High Court. The case against both accused/appellants was based wholly on circumstantial evidence. The pieces of

circumstantial evidence tending to implicate the second appellant were: (i) I after the two deceased watchmen had been fatally wounded he was found
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MAKAME JJA, KISANGA JJA, OMAR JJA
at the home he was staying with a big fresh cut wound which was bleeding; (ii) A trail A of blood was traced from there right up to the carpentry workshop where the murders were committed. The appellants explanation that the cutwound was inflicted on him by bandits who had invaded the home was not backed up by any evidence; (iii) on the fateful night some 14 carpentry planes were stolen from the workshop, and six days B later the appellant told PW5, a relative, that he had carpentry planes for sale but cautioned him not to disclose this to anyone because theft of carpentry planes had taken place at Tosamaganga; (iv) just about six days prior to the commission of the murders, C the same workshop had been broken into and a welding machine (electric motor) was stolen from there but was later found abandoned only about nine meters away. In the dead of that same night the appellant had approached PW4 and asked him for a motor-vehicle to transport a motor from the workshop. Sensing that the said motor D was stolen PW4 refused to oblige.

As for the first appellant there were the following pieces of circumstantial evidence: (i) the appellant's companionship with his co-appellant (ii) the appellant's girl friend said that five to six days following the murders she visited the appellant's home where she E noticed the appellant with a big cut wound on his lower arm; the wound was not fresh. He threatened to kill her if she told people about the wound. She went on to say that the appellant used to put on T-shirts but that after the murders he used to put on long-sleeved shirt and a big coat; (iii) the appellant claimed that he sustained the cut F wound when he was trying to commit adultery with someone's wife. However there was no evidence to that effect.

The Court of Appeal considered whether or not the pieces of circumstantial evidence could ground a conviction in respect of each appellant. G

Held: (i) The fact that only shortly after the murders were committed, the second appellant was found with a big cut wound and that a trail of blood was traced from where he was found to the scene of the murders were incriminating circumstances H which lead to the only reasonable inference that the appellant took part in the murders. And the fact that the second appellant gave a false account of how he sustained the injury goes to strengthen this view;

(ii) although the evidence against the second appellant was a great deal stronger I than that against the first appellant we are fully satisfied that the circumstantial evidence against the first appellant
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MAKAME JJA, KISANGA JJA, OMAR JJA
was enough to lead to the irresistible conclusion that he was one of the killers; A (Kisanga, J.A., dissenting);

(iii) (per Kisanga, J.A.) The fact that the first appellant had sustained a cut wound on a certain day which wound according to the prosecution he was hiding cannot justify drawing the only reasonable inference that the first appellant sustained that wound B during the

commission of the murders at the workshop on the night in question. That fact can be explained on another reasonable hypothesis, namely, that the injury could have been sustained elsewhere and the appellant would have reason to conceal it in order to avoid detection; C

(iv) (per Kisanga, J.A.) The fact that the appellant has not given a true account of how he sustained the cut wound would be relevant only if there was evidence which implicates him sufficiently with the offences charged;

(v) (per Kisanga, J.A.) To Attach any importance to the appellant's giving a false D account of how he sustained the injury and to his subsequent attempt to conceal the injury, and then to proceed to convict him would, in the circumstances of this case amount to basing conviction on the weakness of the defence rather than on the strength of the prosecution case; E

(vi) (per Kisanga J.A.) Each of the inculpatory facts or set of inculpatory facts, adduced against the first appellant, considered singly does not justify the drawing of the inference that the first appellant committed the murders in question. Likewise when considered together they could not justify the drawing of such inference for the simple F reason that it is not possible to add nothing to nothing and get something.

Case Information

Appeal dismissed. G

Mwangole, for the appellants.

[zJDz]Judgment

Makame, Kisanga and Omar, JJ.A: These two appellants were sentenced to suffer death after being found guilty of murdering two night watchmen, employees of Tosamaganga Mission in Iringa District on 14th September, 1983. Chua, J., and all H the three assessors sitting with him were satisfied that the two appellants were the ones who violently killed the deceased persons in the course of a theft. Both appellants were themselves found to be bearing serious cut wounds at the time they were arrested. I

1992 TLR p54

Mr. Mwangole, learned advocate, argued the appellants' appeal before us. He A complained that his clients were convicted merely because of the wounds they had, that their explanations as to how they each got injured should have been believed, and that there was no evidence that the appellants took part in breaking into the Mission Workshop the deceased persons were guarding. On the other hand, Mrs. Makuru, B learned State Attorney for the respondent Republic, supported the High Court decision, urging that the evidence adduced was enough to sustain both convictions.

The evidence relied on was completely circumstantial. We are able to say at the outset that it was clearly good enough and reliable evidence. We respectfully think that the C learned trial judge arrived at a reasonable conclusion.

The evidence was that the two appellants were constant companions. A paramour of the appellant Kitogele, P.W.9 Isabela Luwungo, testifies to this. She was supported D by P.W.2 Dr. Elius Mwakalobo, the other appellant's sister's husband.

During the material night P.W.2 was called to Tosamaganga Hospital where he was working as a doctor, to go and help fellow doctors attend the two watchmen who had been badly wounded. At that time his brother-in-law, the appellant Nzalalila, who had E come out of prison that year, was staying with P.W.3 Leokadia Nzalalila, heard her brother, the second appellant, cry out that he had been hurt by bandits. An inspection of the premises later the same night did not convince the several people there that the second appellant had really got the injuries at the premises. The second appellant's F story that the bandits had escaped.

There was another piece of evidence the learned trial judge mentioned both in his summing-up to the assessors and in his resume of the evidence in the course of his judgment but which he did not express an opinion on. We have in mind the testimony G of P.W.4 Alfonce Kimotuo according to which very late at night on 8/9/83 the second appellant and another person who took great pains to hide his identity went to his house wanting to hire his Pick-up. The second appellant said he wanted to go to Cheraheni to collect a motor from there. P.W.4 suspected that the item would be stolen property, H so he refused. Two days later P.W.4 reported the incident to P.W.6, the brother it will be remembered, and P.W.6 told him that a huge welding machine, called an electric motor by some people, had been stolen on 8th September, 1983, that is the same night I the second appellant asked for transport from P.W.4, but that it had been carried a distance of about nine metres only, to Ruaha

Bridge, and abandoned there. Incidentally we learn from P.W.2's evidence that the A place the murders were committed is also called Cheraheni and from the testimony of P.W.6 we realize that the 'motor' and the planes were stolen from one and the same workshop, the scene of the two murders.

It is our view that the trial court should have felt entitled to, and we do, take the B foregoing as one additional circumstance as far as the second appellant was concerned. It showed not only the second appellant's propensity but established that he had been at the same scene of crime, at night, six days previously, only that his efforts had been frustrated by his failure to secure transport. C

We are fully satisfied that from the various circumstances it was eminently proper to come to the conclusion that the second appellant must have been one of the persons who went to steal from the workshop at Tosamaganga Mission and maliciously killed the two watchmen in the process. His conviction was sound and we accordingly dismiss D his appeal.

Mr. Mwangole before us pursued the line taken by his other client at the trial as to how he got injured that is the Kihesa adultery story. He submitted that the first appellant got injured some ten days after the killings so his wounds had nothing to do with the E alleged offences. Learned Counsel further urged that in any event, even if the first appellant told lies about how he got injured, that does not mean that he was one of the killers.

We have seriously considered the evidence against the first appellant Protas Kitogele. We wish to say, in all candour, that the evidence against his co-accused was a great F deal stronger than that against him. We hasten to add, however, that we do not at all intend, by making that

observation, to mean that the evidence against Kitogele was weak, or that it was not strong enough to ground a conviction. We are, on the contrary, fully satisfied that the circumstantial evidence against him was enough to lead to the G irresistible conclusion that he was one of the killers. There was first the evidence of constant companionship with the second appellant. There was also the testimony of the first appellant's own lover that at the funeral, which was on the morrow of the killings, H she saw the first appellant wearing a long-sleeved shirt and coat for the first time. There was also the evidence by the same witness that four days later when she visited the first appellant at his house and he inadvertently revealed that he had a bandage on his arm he told the witness on being asked by her, that he had been burnt by a kerosene cooker. I Then he changed his story and said he had been cut with a

knife by someone with whom he had quarrelled. The appellant added that he had A turned down advice that he should go to a Government Hospital for treatment and that he had decided to treat himself at home. The appellant also threatened to kill the woman if she even disclosed that he had a large wound. During the investigation, and at the trial, this appellant must have appreciated the dire consequences that might befall him if B proved to have been involved in the crimes. We have first asked ourselves: would a person so seriously cut, with two wounds infact - one on the left shoulder and the one seen by P.W.9 on the right arm, have stayed from hospital treatment merely because C he had been surprised preparing to commit adultery with someone's wife? Faced now with a possible murder case, would he have declined to show Sgt. Kasian, P.W.1, the investigating officer, the location of the house he had intended to fornicate in, and had got so severely injured? He would have at least tried to lead P.W.1 to the house as D the incident imaginary in our view, had taken place at about 4.30 in the afternoon. Also it cannot be true that the first appellant got injured on 25th September, 1983, that is a good ten days after the killings. P.W.9 was clear that she discovered only four days after the funeral that the first appellant had a cut wound which already was not fresh E then. That would be 19th or 20th September. We are unable to entertain what would be fanciful doubt about the first appellant's guilt. We are satisfied that he too was justly convicted.

F Appeal dismissed.

[zJDz]Judgment

Kisanga, J.A: I have had the advantage of reading in draft the judgment of Makame and Omar, JJ.A. upholding the conviction of both appellants for murder and the G sentence of death passed by the High Court (Chua, J.). The facts of the case are sufficiently apparent from that judgment and I need not repeat them here.

I agree that the case against both appellants was pased wholly on circumstantial evidence. I also agree that such circumstantial evidence as adduced against the H appellant Wilbert Nzalaliza was sufficient to ground his conviction. The pieces of circumstantial evidence tending to implicate him and the inferences to be drawn from them are as follows. After the two deceased watchmen had been fatally wounded, this appellant was found at the home of P.W.2, where he

was staying, with a big fresh cut I wound which was bleeding, and a trail of blood was traced from there right up to the

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MAKAME JJA, KISANGA JJA, OMAR JJA

carpentry workshop at Tosamaganga Mission where the murders were committed. A The appellant's explanation that the cut wound was inflicted on him by bandits who had invaded the home of P.W.2, his host and brother-in-law, was obviously bogus because there was no evidence of any breaking or entry by strangers into the room where the appellant claims he was attacked or into any part of P.W.2's premises. Thus the fact B that only shortly after the murders were committed, the appellant was found with a big cut wound, that a trail of blood was traced from where he was found to the scene of the murders were incriminating circumstances which lead to the only reasonable inference that the appellant took part in the murders. And the fact that the appellant gave a false C ground of how he sustained the injury goes to strengthen this view.

On the fateful night some fourteen carpentry planes were stolen from the workshop, and about six days later the appellant told P.W.5, a relative, that he had carpentry planes for sale but cautioned him not to disclose this to anyone because a theft of carpentry planes D had taken place at Tosamaganga. The only reasonable conclusion to be drawn here is that the appellant must have taken part in stealing the planes from the workshop and in murdering the two watchmen in the process; and his caution to P.W.5 was necessarily E calculated to protect him from detection.

Again just about six days prior to the commission of the murders, the same workshop had been broken into and a welding machine, also known as an electric motor, was stolen from there but was later found abandoned only about nine metres away. The F appellant was connected with the theft because in the dead of that same night he had approached P.W.4 and asked him for a motor vehicle to transport a motor from the workshop, but sensing that the said motor was stolen he (P.W.4) refused to oblige. Once again the only reasonable inference to be drawn here is that the appellant went G to the workshop again to carry out theft which he had attempted unsuccessfully on the previous occasion and that in the process he committed the murders.

The various conclusions of inferences drawn from the inculpatory facts point irresistibly to the appellant as being a participant in the criminal activity which resulted in the H murder of the two watchmen in the workshop at Tosamaganga Mission on the fateful night. The appellant's conviction, therefore, was amply justified.

Turning now to the appellant Protas John Kitogele, however, I find myself unable to I agree with the majority judgment. My view

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MAKAME JJA, KISANGA JJA, OMAR JJA

is that the facts do not meet the test for convicting on circumstantial evidence as was A laid down by the Court of Appeal for Eastern Africa in the case of R. v Kipkering arap Koske and Another (1949) 16 E.A.C.A. 135, and followed by this Court in a number of subsequent decisions. Briefly stated the test is that in order to justify the inference of guilt, the inculpatory facts must be incompatible with the innocence of the accused, B and incapable of explanation

upon any other reasonable hypothesis than that of his guilt. The burden of proving facts which justify the drawing of the inference from the facts to the exclusion of any reasonable hypothesis of innocence is on the prosecution and it never shifts. C

The pieces of circumstantial evidence adduced as tending to implicate this appellant are as follows: First, there was the evidence of the appellant's companionship with his co-appellant Wilbert whose conviction we have upheld. The evidence on this appeal was given by two witnesses. The appellant's own girl friend (P.W.9) who at the D material time was doing the work of selling pombe said:

The two accused used to walk together and come to the pombe shop together. They appeared to be friends because they were always together. E

This is supported by P.W.2 who said:

I have known the first accused (present appellant) for a very short period ... I came to know F the first accused in drinking places. At first the first accused used to come alone. Nearer the dates when the events occurred the two accused used to come to the drinking places together.

The first question to determine is this: Are the witnesses saying that both appellants G were always together when they went to the pombe shop or are they saying that they were together at all times? It seems plain to me that neither witness could meaningfully be saying that the appellants were together at all times, for the simple reason that the witnesses themselves were not with the appellants at all times. For instance when H P.W.9 was at the pombe shop selling pombe she would not know what company the appellant was keeping before his coming to the pombe shop. What is more, the appellant Wilbert whose case we have already deal with, used to frequent the home I of P.W.2 and, indeed on the night of the murders the appellant was spending the night there. But it is significant that neither P.W.2

nor P.W.3, his wife, suggested that they saw the appellant Protas at their home. In A other words, if both appellants were together at all times P.W.2 and his wife P.W.3 would have seen them together during the frequent visits by the appellant Wilbert at their home, and they would have said so. But on the contrary P.W.2 merely testified that he saw both appellants together at pombe shops, while P.W.3, his wife, makes no B mention at all of the appellant Protas.

On the evidence, therefore, all one can confidently say is that both appellants used to go to the pombe shop or pombe shops together, and the question is whether that fact was sufficient from which to draw the inference that Protas must have also accompanied C his co-appellant Wilbert to the workshop on the fateful night and there, together with Wilbert committed the murders. For my part, I could not answer that question in the affirmative. For one thing, there was no evidence whatsoever that both appellants were seen together anywhere, let alone at the scene of crime, on the day of the incident. D Further-more when P.W.2 parted with the appellant Wilbert on the material night and the latter went to sleep in P.W.2's back house, Wilbert was alone and not accompanied by the appellant Protas.

Thus on the evidence there were times when both appellants were not together. Both E appellants were not seen together anywhere on the day of the murders. On the other hand in the evening of the night of the incident, the appellant Wilbert was alone at the home of P.W.2 until bed time. In the face of such evidence I could not reasonably conclude that some how the appellant Protas must have accompanied Wilbert to the F scene of crime that night. To my mind such conclusion would merely amount to speculation. The fact of Protas's companionship with Wilbert to pombe shops is capable of an innocent explanation in that Protas may have kept such company only when going to drinking places but not during criminal ventures by his companion. G

The next set of facts tending to implicate the appellant Protas with the murders was also given by P.W.9, his girl friend. She said in effect that five to six days following the murders, she visited the appellant's home where she noticed the appellant with a big H cut wound on his lower arm; the wound was not fresh. After giving on inconsistent account of how he had sustained the wound, the appellant then threatened to kill her is she told people about the wound. She went on to say that before the murders, the appellant used to put on T-shirts but that after the murders he used to put on long I sleeved shirt and a big coat which, according to the prosecution,

was designed to hide the wound. At the trial the appellant claimed that he sustained A the cut wound at Kihesa in Iringa town when he was trying to commit adultery with someone's wife.

I find that the appellant sustained a cut wound on his lower arm, and I am prepared to find further that he has not given a true account of how he sustained that wound. The B question that follows is: What nexus is there between his cut wound and the murders in the workshop at Tosamaganga Mission? Is there material to warrant the inference that the appellant must have sustained the injury in the course of committing the theft and murders at the workshop? I could find no justification for drawing any such inference C myself. In the first place on the evidence it is not established when the appellant sustained the wound. When P.W.9 noticed it five or six days after the murders, the wound was not fresh. But can one conclude that it was necessarily inflicted on the day of the murders and at the workshop? Relying on the evidence of P.w.9 the D prosecution takes the view that after the murders were committed, the appellant used to put on long sleeved shirt and a big coat in order to conceal his injury. But there is no evidence that P.W.9 used to see the appellant every day. Nor does P.W.9 say when she saw the appellant last before the murders were committed. In the absence of any E such evidence it is impossible to know when the appellant began to put on that kind of attire. He might have started putting it on one day or two days, when P.W.9 might not have seen him, before the commission of the murders, in which case if he was hiding a cut wound it would be a cut wound sustained elsewhere, and unconnected with the F incident at the workshop. But even assuming that the appellant started putting on this type of attire on the day following the murders, that would not be sufficient from which to conclude that he was trying to hide an injury which he had sustained during the incident at the workshop. For he could have sustained the cut wound

elsewhere in the G commission of some other wrong, and it would be in his interest to hide it, and even to threaten P.W.9's life against the disclosure of it, in order to avoid detection. In other words, the fact that the appellant had sustained a cut wound on a certain day which H wound according to the prosecution he was hiding cannot justify drawing the only reasonable inference that the appellant sustained that wound during the commission of the murders at the workshop on the night in question. As has just been demonstrated, that fact can be explained on another reasonable hypothesis, namely, that the injury could have been sustained I

elsewhere and the appellant would have reason to conceal it in order to avoid A detection.

The fact that the appellant has not given a true account of how he sustained the cut wound would be relevant only if there was evidence which implicates the appellant sufficiently with the offenses charged. In the case of Fyaralal M. Rassan and B Another v R. [1960] E.A. 854 the Court of Appeal for Eastern Africa, dealing with a similar situation, said:

It is quite plain that false statements made by an accused person do not have substantive inculpatory effect and cannot be used as a make-weight to support other material, C unless the other material would be sufficient independently to sustain a verdict against the accused.

In the instant case the fact that the appellant had sustained a cut wound and that he D tried to hide it by dressing differently and by uttering threats to P.W.9 against disclosure of it does not necessarily connect him with the murders at the workshop because, as demonstrated earlier these facts can be explained. On another reasonable hypothesis; the appellant could have sustained the injury in the course of committing some other E wrong and it would be injury his interest to try to hide it in order to avoid being detected. Quite clearly the facts which do not necessary connect the appellant with the offenses charged could not be relied upon to sustain his conviction for those offenses. Consequently in terms of Bassan's case above cited the appellant's false account of F how he sustained the cut wound could not be used to support what may only be described as a weak prosecution case. To attach any importance to the appellant's giving a false account of how he sustained the injury and to his subsequent attempt to conceal the injure, and then to proceed to convict him would, in the circumstances of G this case, amount to basing conviction on the weakness of the defence rather than on the strength of the prosecution case.

In the last analysis my view is that each of the inculpatory facts or set of inculpatory facts adduced against the appellant Protas, considered singly does not justify the drawing H of the inference that the appellant committed the murders in question. Likewise when considered together they could not justify the drawing of such inference for the simple reason that it is not possible to add nothing to nothing and get something. In other words I the inculpatory facts, whether taken individually or collectively, do not point irresistibly

to the appellant as a participant in the offenses charged. A

It is for these reasons I concur that the appeal by Wilbert has no merit and should be dismissed but would have allowed the appeal by Protas.

B Order accordingly.
C
[zRPz]AUGUSTER SALANJE v MUSSA MOHAMED PEMBA 1992 TLR 62 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Makame JA

22 April 1992
Flynote
Civil Practice and Procedure - Jurisdiction - Application for leave to appeal to Court of D Appeal under section 5(2)(c) Appellate Jurisdiction Act, 1979 - Whether Court of Appeal has concurrent jurisdiction with High Court.
Family law - Appeals - From High Court to Court of Appeal - On point of law or mixed law E and fact - Whether leave to appeal is a pre-requisite - Section 80(4) Law of Marriage Act, 1971.
-Headnote
This was a second application for leave to appeal to the Court of Appeal of Tanzania made to a single judge of the Court of Appeal after the High Court judge had refused F the application. The Court of Appeal judge considered the propriety of filing the second application and what section 80(4) of the Law of Marriage Act, 1971 provides.
Held: (i) Under section 5(2)(c) of the Appellate Jurisdiction Act, 1979, no appeal G shall lie to the Court of Appeal if the matter started in the Primary Court unless the High Court certifies that a point of law (or, by necessary extension, a point of mixed law and fact) is involved;
H (ii) only the High Court may so certify - there is no concurrent jurisdiction like that under section 5(1)(c);
(iii) what has been introduced by section 80(4) of the Law of Marriage Act is the dimension that even on a ground of mixed law and fact a person may appeal to the Court of Appeal. It is in that sense less restrictive, but I do not read that to mean that I one may automatically come up. It would still have to be determined whether
1992 TLR p63
MAKAME JA
there was a point of law or mixed law and fact, and only the High Court has power to A identify such a point in the first instance;
(iv) the applicant could only come up by way of appeal to the full court against the order refusing to grant leave and not by way of a second application to a single judge.
Case Information
Application misconceived and dismissed. B
Kisusi, for the applicant.
[zJDz]Judgment

Makame, J.A.: The appellant Auguster Samanje was advocated for by Mr. Kisusi, C learned Counsel, while the respondent, Mussa Mohamed Pemba, who did not wish to be present, was unrepresented.

The appellant successfully sued for diverse in the Primary Court. It was also decided by the Primary Court that the applicant should get 50% of all the matrimonial assets, and D the respondent's appeal against that decision was dismissed by the District Court. On further appeal to the High Court, it was decided that the applicant should get only a small portion of the matrimonial assets, not 50% as ordered by the two courts below. Maina, J. who made that decision, later heard the present applicant's application for E leave to appeal to the Court of Appeal and refused to grant such leave. He said that he had made the variation because of the undisputed fact that the present applicant's contribution to the acquisition of the matrimonial assets was less than that by her former F husband, the respondent. The learned judge refused leave on the basis that there was no question of law involved, a pre-requisite under section 4(2) (c) (Sic) of the Appellate Jurisdiction Act, 1979.

The applicant contended that she contributed services and money even towards the improvement of the property she found the respondent with, and that this should have G been taken into account by the High Court in terms of section 114.

Mr. Kisusi also argued that in basing himself on section 4(2) (c) of the Appellate Jurisdiction Act the learned judge overlooked section 80(4) of the Law of Marriage Act 1971, which says: H

.... Any person aggrieved by a decision or order of the High Court in its appellate jurisdiction may appeal therefrom to the Court of Appeal (for East Africa) on any ground of law or mixed law and fact. I

1992 TLR p64

MAKAME JA

Counsel submitted that Maina, J. was not entitled to upset the concurrent award by A the two courts below.

I decided to set out the foregoing by way of background only, as it will soon be clear.

Reference to Section 4 of the Appellate Jurisdiction Act by the learned High Court B judge was obviously lapsus calami, and by learned Counsel lapsus linguae. The old section 4, which would have been the relevant one, became the current section 5 when Act No. 16 of 1984 was passed. The intended section was therefore section 5(2) (c) and it is about that I now wish to say something. The High Court Ruling was delivered C on 20th February, 1990.

This matter started in the Primary Court. Under section 5(2) (c) no appeal shall lie to the Court of Appeal if the matter started in the Primary Court unless the High Court certifies that point of law (or, by necessary extension, a point of mixed law and fact) is involved. D Only the High Court may so certify - there is no concurrent jurisdiction like under section 5(1)(c). Section 5(1)(c) is excluded by section 5 (2) which applies "Notwithstanding the provisions of subsection (1) ..."

What has been introduced by section 80(4) of the Law of Marriage Act is the E dimension that even on a ground of mixed law and fact a person may appeal to the Court of Appeal. It is in that sense less restrictive, but I do not read that to mean that one may automatically come up. It

would still have to be determined whether there was a point of law or mixed law and fact, and only the High Court has power to identify such F a point in the first instance.
The implication must be that that the applicant could only come up by way of appeal to the full court against the order refusing to grant leave, and not by way of a second application to the single judge. It follows therefore that the application before me is misconceived and it is hereby accordingly dismissed. The applicant may wish to G pursue matter elsehow as the substantive merit of his effort is not determined by the present decision.
H Order accordingly.
1992 TLR p65
A
[zRPz]BUSHIRI AMIRI v REPUBLIC 1992 TLR 65 (HC)

Court High Court of Tanzania - Arusha
Judge Mroso J

April 28, 1992
Flynote
Evidence - Identification - Description of suspect - Significance. B
Evidence - Corroboration - Evidence of co-accused - To be treated as that of an accomplice.
-Headnote
The appellant and another were prosecuted and convicted for cattle theft and sentenced each to eight year imprisonment. The appellant alone appealed against both C conviction and sentence. The two witnesses who testified against him had not given a detailed description of the appellant before his arrest and before they had a chance of seeing him. He also charged that his co-accused evidence was given much weight in arriving at his conviction. D
Held: (i) The two witnesses ought to have given a detailed description of the appellant to the persons to whom they first reported about the theft before they had a chance of seeing the appellant after he was arrested; the description would be on say E appearance, colour, height and on any peculiar mark of identity;

(ii) in every case in which there is a question as to the identity of the accused the fact of there having been a description given and the terms of that description given are matters of the highest importance of which evidence ought always to be given; first of F all, of course, by the person or persons who gave the description and purport to identify the accused, and then by the person or persons to whom the description was given - Rex v Mohamed bin Allui (1942) 19 E.A.C.A. 72.

(iii) the evidence of a co-accused is on the same footing as that of an accomplice, G that is it is admissible but must be treated with caution and, as a matter of prudence, would require corroboration;

(iv) it would be unsafe to found a conviction of the appellant on the uncorroborated evidence of the co-accused. H

Case Information
Appeal allowed.
Shayo (Junior), for the appellant
Mwaimu, for the respondent I
1992 TLR p66
MROSO J
Judgment
Mroso, J.: The appellant and another were prosecuted and convicted for cattle theft, A contrary to section 268 and 265 of the Penal Code. They were each sentenced to eight years imprisonment. The appellant, but not the other accused person, felt aggrieved by the conviction and sentence and, therefore, has appealed to this court through his advocates M/S Shayo, Jonathan and Company. Six grounds of appeal were filed and B Mr. Shayo, Junior, learned advocate, argued the appeal before me.
The brief facts on which the District Court of Hai convicted the appellant are as follows. At about noon on 27/12/89, at Bomang'ombe, two young men, P.W.1 - Ally C Mohamed aged 16 years and P.W.4 - Twalili Abdi aged 14 years, were grazing cattle 27 head of cattle and 7 goats in the pastures. Two people approached them, beat them up, and stole all the animals which were being grazed. The two young men were forced to accompany the cattle raiders but, later in the evening, they managed to escape D from them. About three days later a village search party which included P.W.6 - Mayaha Lesekoni, recovered all the stolen cattle from the boma of the first accused (in the trial court) in Kiteto District. The first accused was also immediately arrested after the cattle were recovered. The first accused named the appellant as a co-participant E in the theft of the cattle. That led to the arrest of the appellant.
At the trial P.W.1 said that appellant was one of the cattle raiders, that he had put on a militia uniform and held a shotgun. The same evidence was given by P.W.4. P.w.6 told the trial court that the first accused implicated the appellant. The first accused F admitted in court when he was being cross-examined by the appellant that he had indeed named him as a participant in the cattle theft. The appellant himself during his defence said he had been a militia man and attempted to denial of the charge against him. He merely said that his village, apparently Sanya Station, had been raided on the G night of 26/12/89, which should be the night before the day for the cattle theft, and that he was one of the persons who the village chairman had instructed to patrol the village. He was arrested on 2/1/90.
The trial magistrate held that P.W.1 and P.W.4 had reliably identified the appellant as H one of the cattle raiders because they had ample time to mark their appearance unmistakenly. It is not however apparent from the judgment if the trial magistrate made use of the claim by the first accused to the arresting party that the appellant participated in the cattle theft. I
1992 TLR p67
MROSO J
In the first ground of appeal it was argued that the trial magistrate erred in law and in A fact in not considering the defence evidence of the appellant. It is true the trial magistrate did not comment on the evidence of the appellant in his defence, but I can find nothing helpful to the

appellant in his defence evidence. As I mentioned earlier in this judgment, he made no attempt to expressly deny the charge of cattle theft which was facing him. B

It was also argued that since the prosecution did not cross-examine the appellant on what he said in his defence evidence, it must be taken that the defence evidence was accepted as correct and true. With respect to the learned counsel for the appellant, C was there anything worth cross-examining on? It seems to me that apart from mentioning the date he was arrested, the appellant did not say anything during his defence which was relevant to the charge against him.

He talked about being instructed by his village chairman during the night of 26/12/89. D The cattle theft occurred at noon on 27/12/89. He said nothing about what he did or where he was on 27/12/89.

In the third ground of appeal it was argued that the trial magistrate grossly erred in not considering the issue of identification. The trial magistrate in fact appears to have E considered the question of identification of the appellant and the first accused but, certainly, not adequately.

I would agree that it was not enough for P.W.1 and P.W.4 to tell the trial court that the appellant had put on a militia uniform and carried a shotgun, even though the appellant F admitted in his evidence he had trained as a militiaman. There ought to have been evidence that the two witnesses gave a detailed description of the appellant to the persons to whom they first reported about the theft, before they had a chance of seeing the appellant after he was arrested. The description would be on say appearance, G colour, height and on any peculiar mark of identity.

The great significance of evidence of description of a suspect was underscored as long ago as 1942 in the Court of Appeal for Eastern Africa judgment in Rex v Mohamed H Bin Allui (1942) 19 E.A.C.A. 72 cited to me by Mr. Shayo, where the Court said:

> This Court has previously pointed out, and we wish to repeat, that in every case in which there is a question as to the identity of the accused, the fact of there having been a I description given and the terms of that description are matters of the

> A highest importance of which evidence ought always to be given; first of all, of course, by the person or persons who gave the description and purport to identify the accused, and then by the person or persons to whom the description was given .....
>
> B If the description is recorded at the time in an Occurrence Book, Diary or in any other form of writing such book or writing should be put in evidence, if admissible ...

In the case under discussion, the only evidence of description of the appellant was C that he wore a militia uniform and carried a gun. That kind of evidence does not help in identifying the appellant unmistakenly.

The third ground of appeal is not justified. It is complained that the trial magistrate D grossly erred in believing that the first accused mentioned the second accused (appellant) "without any evidence to that effect". I can see no reason why the trial magistrate should not have believed that the first accused mentioned the appellant as a participant in the cattle theft. The first

accused admitted as much in court under E cross-examination by the appellant, thus confirming the evidence of P.W.6. But as said earlier in this judgment, there is no clear indication from the judgment that the trial magistrate relied on that evidence of P.W.6 and the first accused in convicting the appellant.

I think it is well accepted that the evidence of a co-accused is on the same footing as F that of an accomplice, that it is admissible but must be treated with caution and, as a matter of prudence, would require corroboration.

In Omari J. Kibanike and 40 others v R. Criminal Appeal No. 224/75 (DSM High G Court Registry) the late Biron, J. said:

> Where at a trial an accused opts to give evidence on oath and in such evidence he incriminates a fellow accused, such evidence is admissible against the other, though it cannot be treated otherwise than as evidence of an accomplice and therefore requiring H corroboration in practice though not in law, vide section 142 of the Evidence Act, 1967.

Mapigano, J. echoed that view in - Ibrahim Daniel Shayo v R. Criminal Appeal No. I 10 of 1990 (DSM High Court Registry) unreported, where he said:

1992 TLR p69

MROSO J

A Where an accused person gives evidence on oath in a joint trial implicating another accused (even if not a confession), whether or not he implicates himself, it may be used against that other accused, because that evidence is on the same footing as that of any other witness, though as a matter of prudence it must be approached with caution. B

In the case under appeal before me, the first accused implicated the appellant by saying under cross-examination from the appellant, that he had said they were together when committing the cattle theft. The first accused did not, as suggested by the trial C magistrate in his judgment, repudiate or retract or qualify the claim that they committed the crime together. But should the court rely on the word of the first accused alone to convict the appellant?

It is my judgment that it will be unsafe to found a conviction of the appellant on the evidence of the first accused. There are two reasons for this view. First, because of D the time honoured practice of the courts that the evidence of a co-accused, who is treated as an accomplice, should require corroboration. Second, the first accused when giving his evidence in chief did not implicate the appellant. He only did so under cross-examination. This, to me, casts a shadow of doubt on the truthfulness of his E claim and enhances the need for corroborative evidence. Because of the weakness of the evidence of identification given by P.W.1 and P.w.4, I am unable to consider it as good corroborative evidence. It follows that the trial court would not have been on safe ground to convict the appellant on the basis of the evidence of the first accused. F

Ground six of the petition of appeal criticized the judgment for wanting in legal (judicial) reasoning. I would agree right away. After summarizing the evidence at some length, the trial magistrate spent only 10 lines of the two page typed judgment to explain why he G found the appellant guilty as charged. The only reason he found the appellant guilty was that he was satisfied P.W.1 and P.W.4 upmistakenly identified the appellant, because "they had ample time of marking their assailants". But he never considered the shortcomings which I highlighted

above such as their failure to give a description of H the appellant before he was arrested or the failure of the investigating officers to mount an identification parade. In fact the impression one gets from the recorded evidence is that the appellant was arrested solely because the first accused had named him. I

1992 TLR p70

Earlier in this judgment I said that the appellant had not made a clear denial of the A offence. For that reason, the appellant had practically no defence for the offence charged. But despite that weakness he could not be convicted on that basis for an accused who had pleaded not guilty to a charge can only be convicted on the strength B of the prosecution evidence against him and not because of his weak or worthless defence.

In this appeal the learned State Attorney for the Respondent Republic did not seek to support the conviction. I have come to the same view that it will not be safe to uphold the conviction. It follows that I am allowing the appeal by quashing the conviction and C setting aside the sentence which was imposed on him. He is to be set free forthwith unless he is held for some other lawful cause.

Appeal allowed.

1992 TLR p70

D

[zRPz]JOSEPH MAWETA v LEKITETYI KARASI 1992 TLR 70 (HC)

Court High Court of Tanzania - Dodoma

Judge Maina J

29 April 1992 E

Flynote

Criminal Practice and Procedure - Trial - Services of an intepreter - Necessary where the accused does not know the language of the court. F

-Headnote

This is an appeal by the appellant against the decision of the District Court of Dodoma which perused the original proceedings in Haneti Primary Court and ordered the retrial of the respondent on the ground that the respondent did not get a fair trial. G

Held: (i) Conducting trial against the respondent, who did not know Kiswahili, without the assistance of an intepreter was an un-incurable irregularity;

H (ii) the respondent was not given a fair trial.

Case Information

Appeal dismissed.

[zJDz]Judgment

Maina, J.: The appellant was the complainant before the primary court at Haneti in I which the respondent was charged with assault causing actual bodily harm contrary to section 214 of the

1992 TLR p71

MAINA J

Penal Code. The Primary Court acquitted the respondent. The appellant was A dissatisfied and he appealed to the District Court at Dodoma. The District Court quashed the proceedings before the Primary Court and ordered a retrial. This appeal is against the decision of the District Court.

The learned senior district magistrate declared the proceedings before the Primary B Court a nullity on the ground that the respondent, who was the accused person, did not get a fair trial. The proceedings were conducted in Kiswahili language which the respondent did not understand. I may hasten to add that the trial Primary Court magistrate found the respondent guilty of the offence charged, but the two assessors C who sat with him found him not guilty. I have also to point out, like the learned senior district magistrate did, that interpreter who was present when the charge was read over to the respondent, does not appear to have been sworn or affirmed as required by section 26(2) of the Primary Courts Criminal Procedure Code. It is not clear whether D the interpreter appeared only when the plea was taken on 11 May 1988.

The evidence was recorded on 11 May 1988 when witnesses gave evidence for the prosecution, and there is no indication whatsoever whether the interpreter was affirmed or sworn. Similarly, when the trial proceeded on 13 and 14 May, 1988, there is no E indication anywhere in the record whether there was an interpreter present. If the interpreter was present on 11 May 1988 when the charge was read over to the respondent, as the record shown, that interpreter was not sworn or affirmed. That was an irregularity. When the trial proceeded on 13 and 14 May 1988, there is no F indication that there was an interpreter. Again, that was an irregularity. These irregularities are incurable. The respondent was not given a fair trial. The learned Senior District Magistrate properly quashed those proceedings before the trial primary court an ordered a retrial. I must add that the retrial should be before another magistrate of G competent jurisdiction.

Having found that the proceedings were a nullity, it is not necessary to consider whether or not there was sufficient evidence to convict the respondent. That will have to be considered by the primary court when the retrial is held. I do not wish to comment on H the evidence because anything which I may say on the evidence will prejudice the primary court which will hold the retrial.

I Appeal dismissed.

1992 TLR p72

A

[zRPz]CLAY LAWAY v REPUBLIC 1992 TLR 72 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Omar JJA, Ramadhani JJA, Mnzavas JJA

May 13 1992 B

Flynote

Criminal law - Murder - Self-defence - Whether killing on suspicion one has been poisoned constitutes self defence.
-Headnote
The appellant killed a person. In his defence he said he killed because the deceased had C given him poisoned milk. The High Court convicted him of murder. On appeal the Court considered whether the plea of self-defence was available to the appellant.
Held: The plea of self-defence cannot by any stretch of imagination be applicable to D the appellant. Was the appellant by hacking the deceased defending himself from further poisoning?
Case Information
Appeal dismissed.
Ojare, for the appellant. E
Lyimo, for the respondent.
[zJDz]Judgment
Omar, Ramadhani and Mnzavas, JJ.A.: The appellant Clay Laway was charged with and convicted of the offence of murder contrary to section 196 of the Penal Code. F It is the prosecution evidence that the appellant was on 19/9/89 at about 6 p.m. in the house of his step brother called Akweso. Members of the family who had just returned from the fields where they had been cultivating seeds and onions, and others like Akweso's two daughters Martha and Christina who had been to the Cattle Market, G were all in this house. So in the presence of the members of the family, the appellant who only had an hour previously had been with them looking at photographs of the family members, and had gone out of the house and returned, suddenly started attacking Suzana, the deceased who was the wife of Akweso. He struck her with a panga on the H back of her neck causing her instant death. None of the prosecution witnesses was able to say what the cause of the attack was. The two children of the deceased P.W.2 and P.W.3 had testified to being present in their home when their mother was killed. They said that there had been no quarrel at any time that day between the appellant and I any member of the family.
1992 TLR p73
OMAR JJA, RAMADHANI JJA, MNZAVAS JJA
In his defence the appellant stated thus: A

At 5 p.m. on 19/9/89 I came from working in my shamba. I went to the home of deceased. She was at home with her young children. She gave me milk which was poisoned. I got drunk and I killed her while in a state of dizziness and confusion. I took a panga which was B in the house of deceased and I attacked deceased, killing her ... I used to drink but I suffered stomachache and I stopped. After killing deceased I ran away because I became frightened.

Appellant tendered Hospital Discharge Certificate as Exhibit D.1 which showed that C he was admitted in hospital on 22/9/89 and discharged three days later on 25/9/89.
Going through the evidence we find that none of the prosecution witnesses had mentioned about seeing the appellant being given milk by the deceased on that D material day. The learned trial judge was of the view that if at all appellant was found suffering from food

poisoning then the poison must have been taken by him after he had attacked the deceased and had run away from the scene of crime. E

Mr. Ojare, the learned counsel for the appellant considered whether it is credible or supportable that appellant was given poisoned milk. He considered the time that witnesses gave of the family members' return from their respective farms P.W.2 said 7 p.m., P.W.1 said 6 p.m., the appellant said 5 p.m. So Mr. Ojare concluded that there F was a sufficient timegap for the deceased to administer the poisoned milk. The solitary ground of appeal canvassed by the learned defence counsel is that he killed in self-defence but Mrs. Lyimo, learned state attorney for the prosecution said that this was not a case of self-defence or of provocation but of mere revenge and she prayed G for the appeal to be dismissed.

We are of the view that although there was a hospital discharge certificate showing that he was hospitalised for three days on the doctor's diagnosis of poisoning, there is no sufficient evidence from either side to this case to show how this poison got into the H appellant's body and at what time in relation to the event. No doctor was called to clarify on this diagnosis which was on the discharge certificate. Furthermore the plea of self-defence cannot by any stretch of imagination be applicable to him. Was the appellant by hacking the deceased defending himself from further poisoning? The I appellant in his defence stated that he felt dizzy and confused after

drinking poisoned milk and without knowing what he was doing he took the panga A which was in the house of the deceased and cut her on the neck. We cannot in these circumstances find any of the known defences available to the appellant. The story of poisoned milk is still not convincing nor does it raise any doubt in the prosecution case. B If there are causes to this killing the members of the family are not willing to divulge them, then the matter rests there, that the killing was senseless and motiveless. We therefore find that the appellant was properly convicted.

C Appeal dismissed.

D

[zRPz]LUIHAM MARTIN v JUMA SAIDI 1992 TLR 74 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Omar JJA, Ramadhani JJA, Mnzavas, JJA

13 May 1992 E

Flynote

Administration of Estates - Probate and Administration - Subordinate court discovers after hearing application that it has no jurisdiction - Moves High Court to exercise revisional powers - High Court sets aside decision of subordinate court- Proceeds to hear the F application though no fresh application was filed - Whether irregular.

Civil Practice and Procedure - Court of Appeal Rules - High Court has exercised original jurisdiction - Whether leave must be sought and obtained in order to appeal to the Court of Appeal.

-Headnote

Letters of administration were initially granted to the respondent by the Moshi R.M.'s G Court. Then the R.M.'s court realised that it lacked jurisdiction. So it invited the High Court to revise the proceedings.

The High Court ruled that the R.M.'s court had no jurisdiction and set aside the grant H in that cause. Then the High Court (D'Souza, Ag.J.) proceeded to hear and determine the cause although no fresh application was before it. The appellant, aggrieved by the decision of the High Court applied for leave to appeal to the Court of Appeal. That I application was heard by Mroso, J. who decided that no leave was required because D'Souza, Ag. J. was exercising original

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MNZAVAS JJA, OMARI JJA, RAMADHANI JJA

jurisdiction. In the Court of Appeal arguments were heard on whether the decision of A Mroso, J. was right.

Held: (i) The procedure adopted by D'Souza, Ag.J. amply showed that the court decided to hear the case in its original jurisdiction. The framing of issues and the hearing of witnesses from both parties did not, by any stretch of imagination, amount to B revising the R.M.'s Court;

(ii) since the High Court (D'Souza Ag. J.) heard the application in its original jurisdiction, in view of the provisions of section 52 of the Probate and Administration Ordinance, Cap. 445 and section 5(1)(a) of the Appellate Jurisdiction Act, the High C Court (Mroso, J.) was right in ruling that no leave was required for the appellant to appeal to the Court of Appeal.

Case Information

Order accordingly. D

Maruma, for the appellant.

Sang'ka, for the respondent.

[zJDz]Judgment

Mnzavas, Omari and Ramadhani, JJ.A.: When this appeal came up for hearing E the Court decided, with the consent of both learned counsel, that the question whether or not the High Court, (Mroso, J.), was right in his ruling in Misc. Application No. 95/91 dated 25/7/91 he argued first.

Mroso, J. Held in his ruling that the grant of letters of administration to the respondent F by the High Court, D'Souza, Ag. J., (as he then was) in what is referred to as Civil Revision No. 1/81 was not in exercise of the High Court's revisional powers but that the High Court had granted letters of administration acting in its original jurisdiction. Having so held the learned judge concluded that the appellant required no leave from the G High Court to appeal to this Court.

Arguing against the ruling Mr. Maruma, learned counsel for the appellant, submitted that the High Court, (D'Souza, Ag. J.), was exercising his powers of revision when he granted letters of administration to the respondent and that as such section 5(1)(c) of H the Appellate Jurisdiction

Act required the appellant to seek leave from the High Court before lodging an appeal to this Court.

Mr. Sang'ka, learned counsel for the respondent, on the other hand supported the ruling of Mroso, J., that no leave was required from the High Court before the appellant I appealed to this Court. It

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MNZAVAS JJA, OMARI JJA, RAMADHANI JJA

was submitted that the High Court (D'Souza, Ag. J.) acted in its original jurisdiction A and that under section 5(1)(a) for the Appellate Jurisdiction Act no leave was necessary.

In supporting of the argument that the High Court, (D'Souza, Ag. J.), acted in its original jurisdiction when it granted letters of administration we were referred to pages 21 and B 30 of the proceedings. The learned defence counsel also argued that proceedings under the Probate and Administration Ordinance are regulated by the Civil Procedure Code 1966 and referred the Court to section 52 of the Probate and Administration Ordinance.

Our reading of the proceedings show that letters of administration were initially C granted to the present respondent by the Moshi, R.M's Court on 21.7.80. On 3/12/80 the R.M.'s Court realised that it lacked jurisdiction as the value of the estate was in excess of the R.M.'s jurisdiction and consequently wrote a letter to the High Court D inviting it to revise the proceedings of the R.M's Court.

On 4/1/85 the matter came before D'Souza, Ag. J., (as he then was). The present appellant was represented by Mr. Kapoor and Mr. Shayo appeared for the respondent.

Two issues were framed namely: E

(1) who is entitled to the estate of the late Mariam Hamisi?

F (2) who should administer the estate?

Thereupon Mr. Shayo, learned counsel for the respondent addressed the Court:

G "I pray to start", Mr. Kapoor obliged and replied "O.K."

The court then heard witnesses from both parties and delivered its ruling in favour of the respondent. In its ruling the High Court said inter alia on page 39 of the proceedings:

H ... As the estate could by no means be termed a "small estate" under the provisions of Cap. 445 - section 6; the District Court Moshi obviously had no jurisdiction and the grant in that cause is accordingly set aside... I

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MNZAVAS JJA, OMARI JJA, RAMADHANI JJA

Mr. Maruma argued that the High Court (D'Souza, Ag. J.), should have, (after setting A aside the grant by the district court), asked the appellant/applicant to file a fresh application in the High Court and that it should not have resorted to framing issues in the absence of an application for letters of administration before the court.

Mr. Sang'ka conceded that the procedure followed by the High Court was irregular B but argued that the irregularity did not prejudice the interests of the parties and that the counsel for the parties consented to the procedure adopted by the court.

With respect to the learned counsel for the appellant the procedure adopted by D'Souza, Ag. J. amply showed that the court decided to hear the case in its original C jurisdiction. The framing of issues and the hearing of witnesses from both parties did not, by any stretch of imagination, amount to revising the R.M.'s Court as Mr. Maruma would like us to believe. The fact that the R.M.'s court had no jurisdiction to grant letters of administration the proceedings before that court were a nullity and hence D their being set aside.

That it would have been neater for the High Court to ask the appellant to file a fresh application for letters of administration before proceeding to frame issues and determine as to who should be granted letters of administration there can be no doubt; but as E rightly argued by Mr. Sang'ka, learned counsel for the respondent, both counsel did not quarrel with the procedure adopted by the court and the parties were not prejudiced by the irregularity.

It is our considered view that the High Court (D'Souza, Ag. J., as he then was) heard the application for letters of administration in its original jurisdiction. That being the F position and in view of the provisions of section 52 of the Probate and Administration Ordinance, Cap. 445 and section 5 (1) (a) of the Appellate Jurisdiction Act the High Court, (Mroso, J.) was right in his ruling dated 25/7/91 that no leave was required for the appellant to appeal to this Court. Cost to follow the event. G

H Order accordingly.

1992 TLR p78

A

[zRPz]MWANAHAWA MUYA v MWANAIDI MARO 1992 TLR 78 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Omar JJA, Ramadhani JJA, Mnzavas, JJA

13 May 1992 B

Flynote

Administration of Estates - Probate and Administration - Annulment of grant of letters of administration - Concealment of letter of administration granted by lower court - Effect of such concealment.

Civil Practice and Procedure - Revisional powers - Suo moto - When exercisable. C

-Headnote

The appellant applied for and was granted letters of administration by the Resident Magistrates' Court. In that court the respondent was the objector. Despite this grant D the respondent filed a petition for letters of administration in the High Court in respect of the same estate. The respondent deposed in her petition that there had not been any proceedings for grant of probate or letters of administration regarding the estate. The High Court granted letters of administration to the respondent. Dissatisfied with the E grant of letters of administration to the respondent by the High Court, the appellant filed a civil application in the High Court challenging the grant of letters of administration to the present respondent and prayed that the

grant of letters of administration to the respondent by the High Court be revoked. This civil application was heard by a F different High Court judge who instead of addressing the issue invoked revisional power suo moto and declared the proceedings in the Resident Magistrates' Court null and void.

The Court of Appeal considered whether the grant of letters of administration by the G High Court was valid. It also looked into the propriety of invoking revisional jurisdiction suo moto by the High Court over the proceedings of the lower court.

Held: (i) Respondent's blatant lies that there had not been previous proceedings H regarding grant of probate or letters of administration while she was in fact the objector in the R.M.'s court when letters of administration were granted to the appellant, amply demonstrated that she was bent to defraud other interested parties in the estate. Had the High Court (Nchalla, J.) dealt with this issue he would no doubt have found that this was I a good reason to annual the grant of

letters of administration to the respondent by the High Court (Chua, J.); A

(ii) in a proper case the High Court can invoke its powers of revision in a grant of letters of administration by the District Court. Powers of revision are however usually exercised by the High Court suo moto when exercising its supervisory powers over B subordinate courts;

(iii) it is wrong, indeed improper, for the High Court to resort to its revisional powers where (as it was in this case) there are specific issues calling for determination by the court.

Case Information

Appeal upheld. C

D'Souza, for the appellant.

Muhatane, for the respondent.

[zJDz]Judgment

Mnzavas, Omar and Ramadhani, JJ.A.: This is an appeal against the decision of D the High Court (Nohalla, J.), in Misc. H.C. Civil Application No. 161 of 1986 dated 26/1/90 in which the court held that the decision of the R.M.'s Court in Misc. Civil Application No. 51/81 granting letters of administration to the appellant/applicant, E Mwanahawa Muya, was null and void.

Arguing in support of the appeal Mr. D'Souza, learned counsel for the appellant submitted that the High Court failed to consider the appellant's application which was brought under the Probate and Administration Ordinance, Cap. 445 of the laws. It F was the learned counsel's submission that the appellant's application before the High Court was that in granting letters of administration of the estate of the deceased Al-Hadji Karama Maro, to the respondent, Mwanaidi Maro, in the Probate and Administration Cause No. 5/1986 the High Court, (Chua, J.) was misled in that the G applicant, now the respondent, failed to comply with Rules 32 and 71 and section 49 of the Probate and Administration Ordinance. Mr. D'Souza also submitted that in his application for letters of Administration before the High Court, (Chua, J.), the respondent has misled the Court when she said that no proceedings for grant of H probate and/or letters of administration had been commenced before any court inside or outside Tanganyika. In support of this argument the court was referred to page 45 of the proceedings. According to Mr.

D'Souza's submission instead of considering applicant's application which was based on non-compliance with the provisions of the Probate I and Administration Ordinance, the High Court,

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MNZAVAS JJA, OMARI JJA, RAMADHANI JJA

(Nchalla, J.), dealt with the case as if it was an appeal and quashed the decision of A the R.M.'s Court which granted letters of Administration to the appellant; a matter which was not before him.

It was argued that if the respondent had been aggrieved by the decision of the R.M.'s Court in Probate and Administration Cause No. 51/1981 in which letters of B administration were granted to the appellant he should have appealed to the High Court or alternatively she could have applied for revocation of the grant under section 49 of the Probate and Administration Ordinance.

Lastly Mr. D'Souza argued that the High Court, (Nchalla, J.), erred in invoking his C revisional powers suo moto in the course of writing his ruling. The Court was invited to allow the appeal on the ground that the High Court, (Nchalla, J.), failed to deal with the application before him.

In rebuttal Mr. Mahatane, learned counsel for the respondent argued that it was not D clear whether the matter should have been handled as a small estate or as a big estate. It was submitted that for purposes of revocation of a small estate section 82 of the Probate and Administration Ordinance applied whereas section 49 of the Ordinance dealt with revocation of big estates.

It was Mr. Mahatane's submission that proceedings in the lower courts show that the E matter was treated as a small estate and that in a fit case the High Court can interfere with a grant of letters of administration by a lower court. The learned defence counsel argued that in the present case the High Court, (Nchalla, J.), granted letters of F administration to the respondent after it had revoked the grant by the district court. It was finally submitted that the appellant had already been divorced five years before the death of the deceased, Alhadji Karama Maro, and that as such she had no interest in the estate as she had already received her "Kithumni".

In reply Mr. D'Souza argued that the appellant had not been divorced before the G death of her husband. That she was a widow of the deceased the court was referred to page 9 of the proceedings.

As for the provisions of section 82 of Cap. 445 Mr. D'Souza submitted that this argument has been brought rather too late in the day. It was submitted that if the matter H was treated as a small estate by the lower courts the respondent was required to file an application before Chua, J. under R. 85 of Cap. 445. It was also argued that under Rule 71 filing of consent of the other interested parties was mandatory and that no consent was filed by the respondent in her application for letters of Administration before, Chua, J. I

It was finally argued in reply that the ruling of Mr. Kiyeyeu

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MNZAVAS JJA, OMARI JJA, RAMADHANI JJA

did not revoke the earlier decision of the district court. It was submitted that Mr. A Kiyeyeu's ruling concerned Mr. Munuo's application to be heard. In support of this argument the court was referred to page 64 of the proceedings.

This matter has a chequered history. It first started in the primary court from where it was transferred to the district court as the appellant (then petitioner) had indicated that B he was employing an advocate. On 16/4/81 letters of administration were granted to the appellant, Mwanahawa Muya, by the district court - ARUSHA RESIDENT MAGISTRATE'S COURT MISC. CIVIL APPEAL. NO. 51 of 1981. C

Despite this grant the respondent, Mwanaidi Maro, filed a petition for letters of administration in the High Court - probate and Administration Cause No. 5 of 1986 in respect of the same estate and on 20/8/86 the High Court, (Chua, J.), granted letters of administration to the respondent. D

Dissatisfied by the grant of letters of administration by the High Court, (Chua, J.), to the respondent, Mwanaidi Maro, the appellant, Mwanahawa Muya, filed Misc. Civil application No. 161/86 before the High Court challenging the grant of letters of administration by the High Court, (Chua, J.), to the present respondent and (b) of the E Probate and Administration Ordinance, Cap. 445 and Rules 32 and 71 of the same Ordinance; and prayed that the grant of letters of administration to the respondent by the High Court, (Chua, J.), be revoked.

The application was heard by the High Court, (Nchalla, J.), in Misc. Civil Appl. No. F 161/86 in which the learned judge said inter alia ... "There are several documents on record in this matter indicating that the size of the deceased's estate in this matter is quite substantial, amounting to hundreds of thousands of shillings.

On the foregoing facts and reasons, I am quite satisfied that the order of the district G court made on 8/4/81 in Misc. Civil Appl. No. 51/81 granting letters of administration to the applicant. Mwanahawa Muya, ... was null and void. ... In the circumstances I invoke, the revisional powers of this court both under section 31(1)(2) of the Magistrates' Courts Act ... and section 79 of the Civil Procedure Code, 1966, and H hereby quash the whole proceedings ... The instant application is dismissed with costs.".

The High Court also said that the respondent, Mwanaidi Maro, was to remain the administrator of deceased's property as appointed by the High Court, (Chua, J.), in the Probate and Administration Cause No. 5 of 1986. I

1992 TLR p82

MNZAVAS JJA, OMARI JJA, RAMADHANI JJA

It is against this decision by Nchalla, J., that the appellant has come to this Court. A

After hearing arguments from both learned counsel for the parties and after our close examination of all the records, we are satisfied in our own minds that the High Court. (Nchalla, J.), did not at all deal with, nor determine, the issues before him. B

As clearly brought out from appellant's application by chamber summons (page 8 of the proceedings) the learned judge was asked to determine whether or not the grant of letters of administration to the respondent by Chua, J. was invalid as the respondent being the sole administrator did not file an affidavit as required under Rule 32 of the C Probate Rules.

The grant was also said to be invalid because, it was argued by the appellant in his application before Nchalla, J., the respondent did not file "CONSENT" of all those who would be entitled to the whole or part of the deceased's estate as required by Rule 71 D of the Probate Rules.

Finally the learned judge was required to decide whether or not the grant by the High Court, (Chua, J.) was invalid by reason of being obtained fraudulently by the respondent who was alleged to have made false suggestion and/or concealing from the court E something material to the case.

Apparently no where in his lengthy ruling does the learned judge mention, leave alone discuss, the serious allegations levelled against the respondent.

As we have already mentioned above the learned judge merely invoked his powers of F revision suo moto and held that the resident magistrate's court had no power to grant letters of administration to the appellant and dismissed appellant's application which challenged the grant of letters of administration to the respondent by the High Court, (Chua, J.). G

Clearly, and as the learned judge will no doubt agree with us on reflection, the question whether or not the resident magistrate's court had power to grant letters of administration to the appellant was not the issue before him. The issue before him was whether, as alleged in the chamber summons, the respondent had misled and/or H concealed important information from the High Court, (Chua, J.), and thereby causing it to grant letters of administration to the respondent; which letters of administration the High Court would not have granted had the true facts been divulged by the respondent to the court. I

As rightly argued by Mr. D'Souza, learned counsel for the

appellant, appellant's complaint before the High Court (Nchalla, J.), was based on A non-compliance with Rules 32 and 71 and section

49 of the Probate and Administration Ordinance, Cap. 445 of the laws.

Section 49 of the Ordinance enumerates reasons which may cause the grant of probate and letters of administration to be annulled: B

One of such reasons is where "the grant was obtained fraudulently by making a false suggestion, or by concealing from the court something material to the case."

In her petition before the High Court, (Chua, J.), the respondent, Mwanaidi Maro, C stated in paragraph seven:

> No proceedings for the grant of probate and/or letters of administration or otherwise for the administration of the said deceased's estate have been commenced before any court D of compactent authority whether inside Tanganyika or outside it.

It was Mr. D'Souza's submission, as already mentioned above, that the respondent misled the court when she said that there had not been any proceedings for grant of E probate or letters of administration regarding the estate; while she very well knew that the appellant had been granted letters of administration by the R.M.'s court where she (respondent) was the objector. This deliberate lie by the respondent, it was argued, would have entitled the High Court, (Nchalla, J.), to annual the grant of letters of F administration to the respondent by the High

Court, (Chua, J.) - As, it was submitted, Chua, J. would not have granted letters of administration if he had been aware that letters of administration in respect of the same estate had already been granted to the appellant by the R.M.'s Court. G

Mr. Mahatane, learned counsel for the respondent, vigorously argued that section 49 of the Probate and Administration Ordinance talks about fraud and that the respondent did not fraudulently mislead the court. Mr. Mahatane also submitted that failure to adhere to the rules does not by itself harm the interests of the parties. H

With respect to the learned counsel for the respondent section 49 (1) (b) of the Probate and Administration Ordinance is very clear and does not require interpretation or interpolation. Respondent's blatant lies that there had not been previous proceedings regarding grant of probate or letters of administration while she was in fact the objector I in the R.M.'s Court when letters of administration were

1992 TLR p84

granted to the appellant, amply demonstrated that she was bent to defraud other A interested parties in the estate. Had the High Court (Nchalla, J.), dealt with this issue he would no doubt have found that this was a good reason to annul the grant of letters of administration to the respondent by the High Court, (Chua, J,).

We agree that in a proper case the High Court can invoke its powers of revision in a B grant of letters of administration by the district court. Powers of revision are however usually exercised by the High Court suo moto when exercising its supervisory powers over subordinate courts. It is, in our view wrong, indeed improper, for the High Court C to resort to its revisional powers where (as it was in this case), there are specific issues calling for determination by the court.

As for Mr. Mahatane's submission that the appellant had no interest in the estate as she had been divorced five years before the deceased met his death and that she had D received her "kithumni" under Islamic law, this would have been as relevant argument by the respondent when the appellant was seeking letters of administration before the R.M.'s Court. It would also have been a relevant argument if the respondent had appealed against the grant of letters of administration to the appellant by the R.M.'s E Court.

We, with respect, do not see the relevancy of the argument in this appeal which is against the decision of the High Court, (Nchalla, J.), that he had failed to decide the issues before him.

It is our considered view that the High Court, (Nchalla, J.), did not at all consider the F application of the applicant which was brought under the Probate and Administration Ordinance - Cap. 445.

As for the decision of the High Court, (Chua, J.), it is clear from what we have stated above that letters of administration would not have been granted to the respondent had the High Court been informed of the fact that letters of administration in respect of the G same estate had already been granted to the appellant by R.M.'s Court.

We agree with Mr. D'Souza's argument that the respondent was wholly to blame in misleading the Court to do what it would not have done had it been aware of the fact H of the previous grant of letters of administration to the appellant.

In the event this appeal is upheld with costs in this Court and the courts below. For avoidance of doubt this decision does not bar the respondent from challenging the grant of letters of administration to the appellant by the R.M.'s Court if she is so minded. I
Appeal upheld.
1992 TLR p85
A
[zRPz]BENJANIN MWANSI v REPUBLIC 1992 TLR 85 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Omar JJA, Ramadhani JJA, Mnzavas, JJA

13 May 1992
Flynote
Criminal law - Murder - Provocation - Caused by words. B
Evidence - Provocation - Seemingly innocent words - When can be provocative
-Headnote
The appellant confessed killing his fiancee. In his defence he said he was provoked by C the words of the deceased whom he found in the bed of her new lover. Upon being asked she replied: "wewe bwana achana na mimi. Sina habari na wewe" (literally translated: "Please leave me alone. I have no business with you"). The Court considered whether these seemingly innocent words could provoke a person to killing. D
Held: (i) Now, those words in themselves appear innocent. But if they are looked at with the hindsight of what had transpired they are powerful dynamite sufficient to blow off the faculty of reasoning of the appellant. Not only that the appellants hope of E marriage with her was kindled by her deceit but also that very day she made him part with his shs. 20/=. As if that was not enough, and to add insults to injury, she turned him into a sentry and made him kick about his heels eagerly waiting for her when she knew just too well that she was not going to come back to him; F
(ii) the appellant was provoked by those words.
Case Information
Appeal allowed. Guilty of manslaughter.
[zJDz]Judgment
Ramadhani, Omar and Mnzavas, JJ.A.: Benjamin Mwansi, the appellant, was G convicted of the murder of Lucia d/o Hamadi and was sentenced by the High Court of Tanzania at Arusha (Nchalla, J.) to suffer death by hanging.
The Republic had produced three witnesses whose testimonies were not worthy even H to prove the case on a balance of probabilities which is not the standard in criminal trials. The appellant had put the nail in his own coffin, so to speak. His extra judicial statement (Exh. P.3), which he readily owned without requiring it to be produced by the Justice of Peace who recorded it, and his evidence in Court formed the planks on I which his conviction was based.

1992 TLR p86
RAMADHANI JJA, OMARI JJA, MNZAVAS JJA
The appellant and the deceased had agreed to marry and as the day of days was fast A approaching, the deceased schemed back-pedalling while putting up a facade that all was as planned. The deceased was also dishing out favour to one Idi Kazimoto. The appellant had intelligence of that affair but was satisfied by the assurances of Idi that he, B Idi that is, was not aware that he was trespassing on the appellant's garden and promised to desist further encroachments.
On the fateful day the appellant met the deceased on the way. The deceased managed without any difficulty to extract some twenty shillings from the appellant. As the C deceased was on a very private errand, she promised to return and be with the appellant within a short while. Minutes ticked by. The appellant then realised that he was left stranded on a barren and rather a dreary shore. Or, as they say, "aliwachwa kwenye mataa". So the appellant decided to go after the deceased. He went on Idi's D where he was told that the deceased had merely passed through without stopping. The appellant for some few minutes was sitted outside with Idi when suddenly Idi came up with an offer of a cup of tea at a nearby cafe. While there, an invitation was extended to the appellant to wait for food which was being prepared by one Monica. The E appellant had a brainwave and alone he went back to Idi's where, peeping through an aperture in the wall, he saw his Lucia cosily lying of Idi's bed. The appellant asked her "Ee bwana, sasa vipi?" To that the deceased replied "Wewe bwana achana na mimi. Sina habari na wewe". The appellant said he went wild. He kicked the mud F thatched wall making a hole through which he got access into the room. He then picked a plank of wood which he found therein and with it administered unknown number of blows on the head of Lucia. She died instantly. The appellant melted away until he was arrested.
The triable issue was whether or not the appellant was provoked. The learned trial G judge, in agreement with a male assessor and at variance with a female assessor, found that the appellant was not provoked.
The appellant was advocated for by Mr. Ojare, learned counsel. He had a sole H ground of appeal which was that there was "grave provocation". The learned advocate had two points in that respect. First, he pointed out that the words which the deceased replied to the appellant were taken to be not provocative because they were held to constitute neither an offence nor a wrong. Mr. Ojare pointed out further that the I definition of provocation, as given in Section 202 of the Penal Code, includes an insult.
1992 TLR p87
RAMADHANI JJA, OMARI JJA, MNZAVAS JJA
The learned advocate then submitted that the words uttered by the deceased when A looked at with the background of the relationship which existed between the deceased and the appellant were insulting and were nothing but provocative. As his second point, Mr. Ojare contended that provocation was at the time of the utterance of those words by the deceased and that there was no moment for cooling down. The learned B counsel submitted that the learned judge erred in

holding that even if there was provocation the appellant had time to cool down. Mr. Ojare argued that the appellant just did not have that time to cool down.

On behalf of the respondent/Republic was Mr. Mono, Senior State Attorney. He C started by questioning the credibility of the appellant who first disowned the extra-judicial statement, then offered plea of guilty to manslaughter and finally came round to adopt the extra-judicial statement. However, Mr. Mono threw up the sponge and conceded that the appellant was consistent in denying murder and pleading D manslaughter. Secondly, Mr. Mono contended that as the appellant had a pre-knowledge of the relationship between Idi and the deceased then he should not have been provoked when he found Lucia in Idi's bed.

There are three matters which require our determination for the disposal of this E appeal. First, whether or not there was a cause for sudden provocation. Then there is the question at what occasion did that cause present itself. Lastly, and consequent to the second issue, whether or not there was time for cooling down.

The learned trial judge found that malice aforethought was established: F

> ... from the nature of the weapon used (Exh. P.2), the nature of injury caused (Exh. P.1) and the excessive force used by the accused... Also the accused hit the deceased on the G head, vulnerable part of the body.

With respect that was begging the issue which was to be decided. Killing on provocation is provided in section 201 of the Penal Code thus: H

> When a person who unlawfully kills another under circumstances which, but for the provisions of this section would constitute murder, does the act which causes death in the heat of passion caused by sudden provocation as hereinafter I

defined, and before there is time for his passion to cool, he is guilty of manslaughter A only. (emphasis provided)

Thus in killing on provocation circumstances which constitute murder are proved and established. But that is not the end. There is something extra and that is sudden B provocation. If we were to be mathematical and devise a formula we would say: killing by provocation is equal to circumstances which constitute murder plus sudden provocation without time for cooling down.

So what the learned Judge did was to catalogue circumstances which would constitute C murder. But the issue is was there or was there not sudden provocation.

Admittedly the learned Judge also made the finding that the appellant had formed the intention to kill when he was awaiting food with Idi and that was why he left stealthily. The learned Judge stated: D

> It is established on the evidence that accused intended to kill the deceased and the motive thereon was to punish her for fidelity or dishonesty and to revenge from Idi Kazimoto.

The issue then for determination here is whether the appellant returned to Idi's having E made up his mind to pay off old scores, as the learned Judge found, or he was provoked by the reply of the deceased, as Mr. Ojare contended.

The appellant said that he refused to wait for food and so left Idi and then revisited F Idi's place to investigate. There is not the slightest suggestion that he left Idi stealthily. Admittedly in his sworn evidence the appellant had said that he had heard the voice of the deceased from the house of Idi the first time he was there. But in his extra-judicial statement (Exh. P.3) he did not say so and instead he stated that because of suspicion G he went back to Idi's to find out whether or not Lucia was there. The extra-judicial statement seems more credible. It would seem odd, if the appellant had known that the deceased was there, that he would let himself be kidded by Idi; taken away to a cafe H for a cup of tea and forget the purpose of his mission.

However, for the sake of argument and for the avoidance of doubt, too, let us take the sworn evidence of the appellant and work on it. Suppose the appellant was aware that the deceased was inside the room of Idi, and suppose, also, the appellant had already I resolved to teach the deceased a lesson when he had gone to Idi's the second

time, one wonders why the appellant did not go straight and, without a word, force A his way through the door. Indeed one wonders why he did not go there armed so as to execute his purpose. Or put it the other way: how did the appellant know that he would stumble upon a plank of wood in the room of Idi which would conveniently present itself as a weapon with which he would accomplish his murderous errand. We have failed B to come up with answers to these questions that would satisfy us beyond reasonable doubt.

What we are then left with is his story. The appellant said he peeped through the wall and saw Lucia relaxed on the bed of her new lover and upon being asked she replied "Wewe bwana achana na mimi. Sina habari na wewe". C

Now, those words in themselves appears very innocent. But if they are looked at with the hindsight of what had transpired, they are a powerful dynamite sufficient to blow off the faculty of reasoning of the appellant. Not only that the appellant's hope of marriage D with her was kindled by her deceit but also that very day she made him part with his shs. 20/=. As if that was not enough, and to add insults to injury, she turned him into a sentry and made him kick about his heels eagerly waiting for her when she knew just too well that she was not going to come back to him. With this prelude one would agree E with the lady assessor that the appellant was provoked by that reply.

Did he have time to cool down? No, obviously not. If so, had the gentleman assessor grasped what happened, he would have opined as his colleagues for he had said: F

> The accused had time to cool, from the time he discovered that Lucia was in the house of Idi Kazimoto to the time accused returned there for the second time. G

Mr. Mono, has also submitted that the appellant, being a Nyiramba, whose custom, as he had admitted, does not give a right to a fiance to stop a fiancee from running with other persons, should not have been provoked. We agree with Mr. Ojare that Lucia was not a Nyiramba but a Mbulu and the matter was in Hanang District which again is H in Mbulu area. Moreover, under Section 202 of the Penal Code the appellant has to be judged as "an ordinary person of the

community to which the accused belongs". At the time of the offence the appellant belonged to the Mbulu community.
We, therefore, find the appellant not guilty of murder but of manslaughter. So we I quash the conviction for murder. We set aside
1992 TLR p90
the sentence of death and impose one of imprisonment for a term of 4 years taking A into account that he has been in custody over since 18/8/1998. Appeal is allowed to that extent.
B Appeal allowed.
1992 TLR p90
C
[zRPz]JOHN SANGAWE v RAU RIVER VILLAGE COUNCIL 1992 TLR 90 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Omar JJA, Ramadhani JJA, Mnzavas, JJA

13 May, 1992
Flynote
Civil Practice and Procedure - Jurisdiction of High Court - Suits concern immovable D property which is land not held on a Government lease or a Right of Occupancy granted under the Land Ordinance.
-Headnote
In an application for striking out a notice of appeal the Court was moved to make a E ruling on the competence of the High Court to entertain a suit which concerned immovable property which is not land held on a government lease or a right of occupancy granted under the Land Ordinance F
Held: By virtue of the provisions of s. 63(1) Magistrates Courts Act, 1984 the High Court had no jurisdiction to entertain the suit.
Case Information
Order accordingly. G
[zJDz]Judgment
Omar, Ramadhani and Mnzavas, JJ.A.: Before this appeal came up for hearing Mr. Mahatane, learned counsel for the respondent stated that while he was giving a copy H of the Notice of Motion to the advocate for the Appellant in which mention he wanted to argue on the striking out of this appeal as being time barred; he came across the decision of this Court in Civil Appeal No. 25 of 1989, which is on all fours with the present case. The decision he drew our attention to is to the effect that the High Court I had no jurisdiction to entertain the suit which concerned immovable
1992 TLR p91
OMARI JJA, RAMADHANI JJA, MNZAVAS JJA

property which is not land held on a Government lease or a Right of Occupancy A granted under the Land Ordinance. The relevant provision of the law governing this decision is Section 63(1) of the Magistrates Courts Act, 1984 which reads:

Subject to the provisions of any law for the time being in force where jurisdiction in B respect of the same proceedings is conferred on different courts, each court shall have a concurrent jurisdiction therein;

C Provided that no civil proceedings in respect of marriage, guardianship or inheritance under customary law, or the incidents thereof, and no civil proceedings in respect of immovable property, other than proceedings relating to land held on a government lease, or a right of occupancy granted under the Land Ordinance or proceedings under section D 22 or 23 of the Land Ordinance shall be commenced in any court other than a primary court unless the Republic is a party thereto or unless the High Court gives leave for such proceedings to be commenced in some other court.

We are satisfied that this following decision of this Court in Civil Appeal No. 25 of E 1989 is relevant in this case. It reads thus:

We held that the High Court has no original jurisdiction in the matters mentioned above and cannot therefore order such proceedings to commence in itself. Our conclusion on F this point is supported by the view expressed by this court in the case of Frank M. Marealle v Paul Kyauka Njau [1982] T.L.R. p. 32.

G We think the rationale or policy behind the provisions of section 63 (1) which deprive the High Court of original jurisdiction in these and involve the community at the grass roots level, that the matters are better dealt with first by courts which are closer to the people than the High Court. H

We declare that these proceedings in the High Court were a nullity.

The appellant would remain with that portion of land which he is at this moment occupying. Either party if he is so minded can I

1992 TLR p92

start fresh proceedings in the proper court. A

There should be no outcry on damages or costs that may have accrued since the inception of this case in the High Court.

B Order accordingly.

1992 TLR p92

[zRPz]MICHAEL HAISHI v REPUBLIC 1992 TLR 92 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Omar JJA, Ramadhani JJA, Mnzavas, JJA

13 May, 1992 C
Flynote

Evidence - Witnesses contradicting themselves on vital details - Whether credible. D
Evidence - Bias - All witnesses from a village hostile to that from which accused comes from - Inconsistency in evidence given by witnesses - Fears of bias must be dispelled.
Evidence - Identification - Witnesses contradicting themselves - Whether reliable. E
-Headnote
The appellant is alleged to have been a party in malicious damage of property of another person. He was prosecuted, acquitted by the trial court, convicted on appeal to the High Court and then he appealed to the Court of Appeal challenging the decision of F the High Court. His conviction was supported by evidence of identification and other pieces of evidence adduced by witness who hailed from a village which harboured hostility against the appellants village. It was argued in favour of the appellant that the evidence given by the witness had so many contradictions that it was unsafe to ground G conviction on such evidence. Further it was said that since all the witnesses hailed from a hostile village there was need to dispel fears of bias and on the evidence these fears were not dispelled.
Held: (i) Since the witnesses contradicted themselves on the question of identification H of the appellant that evidence cannot remain unshaken;

(ii) since all the witnesses hailed from a village which was hostile to that of the appellant a high degree of consistency than the one displayed is essential to dispel fears of bias. I
1992 TLR p93
RAMADHANI JJA, OMAR JJA, MNZAVAS JJA
Case Information
Appeal allowed. A
Sang'ka, for the appellant.
Lyimo, for the respondent.
[zJDz]Judgment
Ramadhani, Omar and Mnzavas, JJ.A.: At about mid-day of 23/3/1987 the B house of Slaa s/o Malley (P.W.1) at Gongali Village in Mbulu District was rid of its roof which was then put on the ground and set on fire. This was done by about fifty people of whom six were prosecuted for malicious damage to property contrary to section 326(1) of the Penal Code. The District Court of Mbulu found that three accused C persons had no case to answer and at the end of the trial the remaining three were acquitted because of insufficient evidence.
The Republic was aggrieved by that judgment and appealed against two of the discharged accused persons before the High Court of Tanzania at Arusha. In the D course of the hearing the Republic abandoned the appeal against one respondent but proceeded to secure a conviction and a sentence of imprisonment for two years with respect of the remaining respondent, Michael Haishi, the present appellant. E
As in the High Court, the appellant was represented before us by Mr. Sang'ka, learned advocate. The memorandum of appeal contained five grounds which crystalizes down to three. The first ground is on the credibility of the Prosecution witnesses while the second is on the existence or non-existence of circumstantial evidence and lastly the severity F of the sentence.

Mr. Sang'ka submitted that the learned first appellate Judge (Mchalla, J.) "erred in law and fact in interfering with the trial magistrate's findings on the issue of credibility in the absence of circumstances of unsual nature apparent in the record of the trial court". G To support his proposition, the learned advocate cited the following authorities: Daudi Mwabusila v John Mwalefila [1967] H.C.D.n.59 and Ibrahim Ahmed v Halima Gullet [1968] H.C.D.n. 76

Mr. Sang'ka said that the trial Magistrate who saw the witnesses disbelieved them but H the first appellate Judge accused him of having "acted on wrong principles and thereby grossly misdirected himself on the law and hence wrongly acquitted the 1st respondent". Mr. Sang'ka submitted that it was the learned Judge who misdirected himself when he said "I really fail to see how the trial magistrate disbelieved P.W.2's I evidence."

1992 TLR p94

RAMADHANI JJA, OMAR JJA, MNZAVAS JJA

Mr. Sang'ka had a twofold attack on the credibility of the Prosecution Witnesses. A First, he contended that they were not independent. He said that there were two hostile bordering villages: Gongali and Bassodowish. Mr. Sang'ka pointed out that all the P.W.s. were from Gongali while the appellant was the chairman of Bassodowish. B Secondly, Mr. Sang'ka pointed out that the only eye witness, Akweso s/o Baric (P.W.2), was unreliable as he had contradicted himself in a material particular.

On behalf of the respondent/Republic was Mrs. Lyimo, learned State Attorney. She conceded that there was the inter-village hostility but contended that it was prejudicial C since the four crucial prosecution witnesses were at various localities when they saw what they testified to in court and therefore did not have an occasion to conspire against the appellant. She thus argued that the prosecution witnesses were independent. Against Mrs. Lyimo admitted that there were contradictions in the testimony of P.W.2 but she D submitted that they were not fatal because of the circumstantial evidence from the other prosecution witnesses.

At this juncture it is imperative that we pose to review what these prosecution witnesses testified in court.

The eye witness, P.W.2, stated that he had seen the appellant leading a group of E about fifty persons to the house of P.W.1. This witness was very positive that he saw these people lifting off the roof of P.W.1's house, resting it on the ground and that the appellant then applied a lighted match-stick to it and thereby set the roof ablaze. On F the other hand, P.W.3, Yohana d/o Ako, only recognised the appellant out of the fifty strong who were warming themselves against a fire which was about thirty paces from the house of P.W.1.

P.W.4, Bura s/o Lehema, testified that he was told by the appellant that the appellant "will demolish the house of P.W.1". Soon after that P.W.4 saw from far away smoke G rising up to the sky but he did not know what was burning. P.W.4 added "when I saw them passing I did not know where they were going". P.W.4, Sahware Barie, saw the appellant with his group going to the house of P.W.1. We better let him tell his own story:

H They started to break the house of P.W.1. they break all the house and started to carry it from there and went with it outside the shamba. After a short time I saw a big smoke which was followed by fire. I

1992 TLR p95
RAMADHANI JJA, OMAR JJA, MNZAVAS JJA
P.Ws 2 and 5 claimed to have been eye witnesses yet their testimonies are A irreconcilable. Whereas P.W.2 saw just the roof being hoisted down and set on fire by the appellant, P.W.5 witnessed the whole house being demolished and then merely saw a big smoke. P.W.5 did not see who lighted the fire and all that he said about the appellant was that "all that they did this accused was there" - So according to P.W.5 B the transgression committed by the appellant was being present without knowing whether innocently or otherwise.
Then, as Mr. Sang'ka had pointed out, P.W.2 contradicted himself. Both in his examination-in-chief and in his cross-examination by the sixth accused, P.W.2 was emphatic that "It was only Michael [the appellant] who set fire to the house and no C one else". However, P.W.2 shifted ground when he replied to the fourth accused that "Even this accused [fourth accused] did set fire to the house". So it was no longer only the appellant and no one else who lighted the fire. D Again P.W.2 testified that the whole mob of fifty people was in a single group. P.W.4, on the other hand, talked of three district groups and that the appellant was in the second one. At first, however, this witnesses had deposed: "They were too many but I only identified two of them, that were village chairman (1st accused) and 2nd accused. E They passed me in a group." It is not clear whether by "in a group" he meant the whole lot was in a single group or as he had said later in the second group. Not only that, but P.W.4 went on to say that he identified the fifth accused too in the third group thus contradicting his earlier deposition that he had identified only 1st and 2nd F accused persons. Then P.W.5 talked of two groups and that the appellant was in the first group contrary to what P.W.4 had said.
So we find that P.W.2 was not the only one who had contradicted himself but that P.W.4 did that as well and that P.Ws 2, 4 and 5 contradicted one another G hopelessly-in vital details.
However, the learned Judge found that "Inspite of the discrepancies in P.W.2's evidence as pointed out by Mr. Sang'ka, that evidence on the whole remains unshaken. With respect we are a shade unsure whether that could be so and particularly as H P.W.2 is controverted by the other who are themselves irreconcilable - and the fact that the learned Judge did not pose to consider these. On the contrary he found that "The evidence of P.W.2 was highly corroborated by another cogent evidence that was given by P.W.3 and P.W.4 who were also physically present at the scene..." I
1992 TLR p96
RAMADHANI JJA, OMAR JJA, MNZAVAS JJA
This unhealthy state of evidence is aggravated by the fact of hostility which was A established to exist between the two villages. The learned Judge stated:

I tend to agree with the finding of the trial magistrate that the source of the problem in B this matter could be a dispute over ownership of land which the parties in this case are contending.

If so, in our considered opinion, then the probability of biased testimony, prompted by that hostility becomes a matter of nagging concern which could not be lightly waived C aside by saying:

There is no reason, let alone good reason, given why these witnesses who are independent witnesses at that should have conspired to testify falsely against the 1st respondent and thereby implicate him in this charge. D

The trial magistrate correctly pointed out that all the six prosecution witnesses hail from Gongali Village while the appellant was the chairman of Bassodowish Village. So a high degree of consistency than the one displayed is essential to dispel fears of bias. Thus E we agree with the trial magistrate that:

These collection of those doubts make any court of justice and law find the accused not guilty at all. F

Once we have come to this conclusion then the remaining two grounds of appeal are superfluous. There could be no question of corroborating circumstantial evidence since that, too, would have come from the other biased witnesses. Of course if the appellant is not guilty there is no question of punishment. G

We thus allow the appeal, quash the conviction, set aside the punishment and order the immediate release of the appellant unless he is otherwise lawfully held.

H Appeal allowed.

1992 TLR p97

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[zRPz]BERNADETA PAUL v REPUBLIC 1992 TLR 97 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Omar JJA, Ramadhani JJA, Mnzavas JJA

13 May 1992

Flynote

Criminal Practice and Procedure - Sentencing - Mitigation - Conviction on plea of guilty - B In remand for five years and first offender - Whether sentence of 4 years imprisonment proper.

-Headnote

The appellant was convicted on her own plea of guilty, of killing her 8 day old baby. C In sentencing the appellant the High Court considered only two mitigating factors - that she was a first offender and that she had been in custody for almost five years. The sentence imposed on the appellant was 4 years imprisonment against which she appealed. It was argued on appeal in favour of the appellant that the fact that she D readily pleading guilty to the offence was not considered as a mitigating factor.

Held: (i) An appellate court should not interfere with the discretion exercised by a trial judge as to sentence except in such cases where it appears that in assessing sentence E the judge has acted upon some wrong principle or has imposed a sentence which is either patently inadequate or manifestly excessive;

(ii) had the learned judge taken into account appellant's plea of guilty to the offence with which she was charged the judge would no doubt have found that the appellant F was entitled to a much more lenient sentence than the sentence of 4 years imposed.

Case Information

Order accordingly.

Maruma, for the appellant. G

Lundu, for the respondent

[zJDz]Judgment

Omar, Ramadhani and Mnzavas, J.A.: The appellant, Benadeta Paul, had an affair with one Godfrey on 20/11/84. The embrace culminated to pregnancy and on H 20/8/85 she delivered a full-term baby boy in hospital where she had been sent by her parents. Apparently the parents did not suspect her to be in the family way, neither did she tell them of her condition.

She remained in hospital for only one night and was discharged home. On arriving I home the parents who had, as already mentioned,

been taken completely unaware started asking her as to who was the father of her A child. The appellant replied that she did not know the whereabouts of the putative father. It would appear from the facts narrated to the trial court that parental pressure reached to such an extent that eight days after delivery of the infant the appellant decided to kill the baby and did so by administering a coffee pesticide to it. B

From the facts in support of the charge after the baby had died the appellant tried to take her own life by drinking the same pesticide. Immediately after the killing of the baby the appellant was arrested and charged with infanticide c/s 199 of the Penal Code. C

She pleaded guilty to the charge and, on her own plea of guilty, she was convicted as charged. In sentencing the appellant the High Court, (Munuo, J.), remarked:

D The accused is a first offender. She has been in custody since September, 1985, almost five years now. I sentence the accused to 4 years imprisonment.

Mr. Maruma, learned defence course, who also defended the appellant in the High E Court has no quarrel with the conviction, based as it was, on appellant's unequivocal plea of guilty. He has however appealed to this Court on behalf of the appellant against the sentence imposed.

Arguing against the sentence of 4 years imprisonment the learned defence counsel F submitted that in imposing the sentence the learned judge only took into account (as mitigating factors) that the appellant was a first offender and that she had been in remand for almost five years. It was submitted that the fact that the appellant readily pleaded guilty to the offence was not considered as a mitigating factor nor it was argued, the G possibility that at the time she committed the offence she was mentally confused due to constant harassment by her parents who wanted to know the paternity of the child.

It was the learned defence counsel's submission that had the learned judge taken into H account these other mitigating factors she would have found that custodial sentence was not the

proper punishment. The court was invited to allow the appeal, set aside the sentence of imprisonment and order the release of the appellant from custody.

In rebuttal Mr. Lundu, learned state attorney, supported the sentence on the ground I that "the nature of the offence called for a

1992 TLR p99

OMAR JJA, RAMADHANI JJA, MNZAVAS JJA

severe punishment". The learned counsel was of the view that the sentence of 4 years A was "rather lenient". It was submitted that there was nothing wrong for parents to question their daughter as who was the father of the child; and that there was nothing wrong for parents to question their daughter as who was the father of the child; and that such inquiries by parents could not be said to amount to harassment of the daughter B to the extent of making her mentally confused and driving her to commit infanticide. The Court was asked to dismiss the appeal.

Dealing with the question of reduction of sentence imposed by a trial judge the Court of Appeal for Eastern Africa had this to say in R. v Mohamed Ali Jamal, 1948 15 C E.A.C.A. 126:

> An appellate court should not interfere with the discretion exercised by a trial judge as to sentence except in such cases where it appears that in assessing sentence the judge has acted upon some wrong principle or has imposed a sentence which is either D patently inadequate or manifestly excessive.

In a later case - James s/o Yaram v R. (1951) 18 E.A.C.A. 147, the same court also said: E

> A court of appeal will not ordinarily interfere with the discretion exercised by a trial judge in a matter of sentence unless it is evident that he has acted upon some wrong principal or over-looked some material factor. F

Coming to the present case it is clear from the record that in imposing the sentence of 4 years imprisonment the learned trial judge overlooked the fact that the appellant pleaded guilty to the offence charged. G

In the case of Francis Chilema v R. [1968] H.C.D. 510 where the accused had pleaded guilty the court said inter alia:

> It is generally, if not universally, recognised that an accused pleading guilty to an offence with which he is charged qualifies him for the exercise of mercy from the court. The H reason is, I think obvious, in that one of the main objects of punishment is the reformation of the offender. Contrition is the first step toward reformation, and a confession of a crime, as opposed to brazening it out, is an indication of contrition. Therefore in I

1992 TLR p100

A such a case a court can, and does impose, a milder sentence that in would otherwise have done.

It is our considered view that had the learned judge taken into account appellant's plea of guilty to the offence with which she was charged she would no doubt have found B that the appellant was entitled to much more lenient sentence than the sentence of 4 years she imposed. This is especially so taking into account that the appellant had but for this conviction an unblemished

record and, if we may also mention, she had been in remand for about five years with the serious charge of infanticide hanging on her. C

Taking all these factors into account we agree with Mr. Maruma, learned defence counsel, that this was a case that loudly cried for leniency.

As the appellant was sentenced to 4 years imprisonment of 16/2/90 she has now D already served more than two years of the sentence. We think that is more than sufficient punishment. The sentence of 4 years imprisonment is accordingly hereby set aside and in substitution therefore the appellant is sentenced to such term of imprisonment as would result to her immediate release from custody; unless she is E otherwise lawfully held in connection with another matter.

F Order accordingly.

1992 TLR p100

G

[zRPz]HASSAN JUMA KANENYERA AND OTHERS v REPUBLICOMAR JJA, RAMADHANI JJA, MNZAVAS JJA 1992 TLR 100 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Omar JJA, Ramadhani JJA, Mnzavas, JJA

13 May 1992

Flynote

Evidence - Confession - Retracted confession - Need for corroboration. H

Evidence - Identification - By a single person - Need for corroboration.

Evidence - Identification - Under horrifying situation - Whether reliable. I

1992 TLR p101

The appellants were convicted of murder and sentenced to suffer death. They A appealed challenging the evidence adduced and which grounded their conviction. Four of the appellants were identified during a parade by P.W.4, the wife of one Dr. Tesha who was killed. P.W.4 is said to have been raped by several of the bandits in the presence of her 12 year old daughter. The appellants challenged the reliability of B identification by P.W.4 in such a horrifying situation. The first and second appellants were identified by P.W.4 alone. The appellants charged that identification by a single person needed corroboration which in their case was wanting. Other pieces of evidence which supported conviction were retracted confessions. These were challenged as C being involuntarily made and that in any case they needed corroboration which was lacking. The retracted confession in respect of the first appellant was tendered in evidence by the appellant himself during cross-examination and the defence councel raised no objection. D

Held: (i) However horrifying a situation is there is a watershed mark and if that is reached then a victim overcomes his or her fear and measures up to the occasion. We believe P.W.4 after such languish sojourn with her persecutors she surpassed fear and E as she said "Despite the torture I

remained alert in the mind and observed the bandits closely". Moreover, in this particular case the reliability of the identification of the appellants largely depended on the demeanour of P.W.4. This was the monopoly of the learned trial judge who believed P.W.4 and we will be wrong to fault her. F

(ii) exh. P.15 was produced by the first appellant himself as an exhibit when he was cross-examined by the prosecution and the defending counsel did not object. So it cannot now be heard that the statement was involuntary;

G (iii) the two retracted statements can be safely relied upon under the authority of Tuwamoi v Uganda [1967] E.A. 84;

(iv) since we have found that P.W.4 properly identified the authors of the two retracted statements as well as the other appellants then her evidence provides corroboration if that was required;

H (v) it is a rule of practice, not of law, that corroboration is required of the evidence of a single witness of identification of the accused made under unfavourable conditions; but the rule does not preclude a conviction on the evidence of a single witness if the court is fully satisfied that the witness is telling the truth. I

1992 TLR p102

RAMADHANI JJA, OMAR JJA, MNZAVAS JJA

Case Information

Appeal of 1st, 2nd, 3rd and 5th appellants dismissed. Appeals of 4th and 6th A appellants allowed.

Ng'maryo, Itemba and Maruma, for appellants

Mono, for the respondent B

[zJDz]Judgment

Ramadhani, Omar and Mnzavas, JJ.A.: The deceased, Dr. Luis Tesha, on the night of 14/6/1985 was at his home in Chekereni, Weruweru Village in Moshi, together with his wife, Zaresh Tesha (P.W.4), his daughter, Sia Tesha (P.W.5) and a house boy, Prosper Francis (D.W.6), when they were invaded by a group of thugs who killed C him, raped and serious assaulted his wife, harassed his daughter and the house boy and made away with a number of items of property.

The widow (P.W.4) named and identified the first appellant, Hassan Juma D Kanenyera, who, until a couple of months before the incident, had been their watchman. The first appellant was tracked down at Kilosa by D/Cpl. Paulo (P.W.2). He was brought back to Moshi where he owned participating in the crime and named six other persons as his companions. He recorded a statement with the Police which was admitted as Exh. P.15. However, when he was taken to a Justice of the Peace, E Luvanda (P.W.1), he recorded an extra-judicial statement (Exh. D.1) in which he retracted what he had admitted in Exh. P.15 just as he had done at the trial. One of the persons whom the first appellant had implicated, Cyprian Joseph, the second appellant, F admitted to have been a party to the crime and gave a narrative very much like that of the first appellant which was recorded by P.W.1 as an extra-judicial statement (Exh. P.1). The second appellant, too, retracted the admission in his sworn evidence in court. As a result of the admissions of these two appellants, the persons they had implicated G were also arrested and

charged. All in all there were eight accused persons. Accused No. 6, John Magesa, was acquitted, while accused No. 8, Julius Hamza, was convicted of receiving stolen property c/s 311(1) of the Penal Code and was sentenced to imprisonment for a term of ten years. The remaining six accused persons were H convicted of murder by the High Court of Tanzania at Arusha (Munuo, J.) and needless to say, were sentenced to suffer death. These six have now appealed before us.

The first appellant was represented by Mr. Ng'maryo, learned I

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RAMADHANI JJA, OMAR JJA, MNZAVAS JJA

attorney, while Mr. Itemba, learned counsel, advocated for the second appellant, and A the other four appellants had the services of Mr. Maruma, learned counsel.

Mr. Ng'maryo had a memorandum of appeal containing eight grounds and Mr. Itemba had two while Mr. Maruma presented six grounds of appeal. For the sake of simplicity B and clarity we have consolidated all these grounds, some of which are mere repetitions, and we have come up with five objections. Again to avoid recapitulations we are first going to consider the five grounds drawing from the arguments of all the three learned advocates without indicating who submitted what and then take into account the counter-claims of the respondent/Republic through Mr. Mono, the Senior C State Attorney. After that we shall determine how our findings affect the individual appellants.

The first contentious issue was the credibility of the widow, P.W.4, which was assailed on two fronts. First, the appellants have argued that P.W.4 was not reliable because D she did not mention the first appellant in her Police Statement, Exh. D.2, which was recorded on 17/7/1985, that is just over a month after the incident. There she had said:

E Nakumbuka mnamo tarehe 14/6/85 kama saa 01.00 usiku huko nyumbani kwangu Karanga tulivamiwa na majambazi wasiojulikana...

However, it was pointed out by the appellant that on 10/9/85, some three months F later, she was able to pick out the first, the second, the third and the fifth appellants from an identification parade which was mounted by Inspector Daniel Kawiche (P.W.3) the results of which were tendered as Exh. P.2. In another identification parade on 25/9/84 (Exh. P.3), after fifteen days, P.W.4 could not pick-up anybody though the fourth G appellant was paraded. It was further pointed out that it was after the two identification parades that P.W.4 gave her second statement (Exh. D.3) in which she claimed to have recognised the first appellant among the bandits who killed her husband. So the appellants submitted that if P.W.4 had indeed identified the first appellant that fateful H night she would not have missed to record that in her first statement to the Police.

To that submission the respondent/Republic countered that P.W.4 was cross-examined on that and she had said that she did not disclose the first appellant in her first Police statement because she was concerned about her own safety. In any case Mr. Mono I added,

1992 TLR p104

RAMADHANI JJA, OMAR JJA, MNZAVAS JJA

P.W.4 had mentioned the first appellant to A.S.P. Mwanga (P.W.9) and that it was A after P.W.9 had identified himself as a Policeman that P.W.4 was at ease to make that revolution.

The learned trial judge believed P.W.4 and we see no good reason to fault her. P.W.4 did not also disclose in her first Police statement that she had been raped. Yet she B was and by four thugs, one after another, and within an earshot of her young daughter of twelve years, P.W.5. To make it worse, the awareness that among the thugs was a person who had been in her pay-roll was undoubtedly nauseating. P.W.4 would definitely be loathsome to put that in writing for all to see just a few weeks after the C incident when she had not conditioned herself to live with her tormenting memory. On the other hand, one could easily understand her readiness to whisper that disgusting experience into the ear of a Police investigator in privacy just a day after the incident, on 15/6/1985.

The other front relied upon by the appellants on the issue of credibility of P.W.4 was D that she was not borne out by the evidence of the other two occupants of the house in that evening. The young daughter, P.W.5, they contended, was loud and clear:

E I did not note the particulars of their clothes because one of the bandits was holding a sime of my neck. Under such captivity I was more concerned about surviving; not looking at the clothes the bandits wore ... I was naturally terrified under the panga threats.

As for the houseboy, P.W.6, the appellants pointed out, he did identify the sixth F appellant at the second identification parade but in his evidence on behalf of the defence, after he was offered by the prosecution, he stoutly and categorically denied that:

G I did not see accused No. 7 at the banditry raid on the material night.

D.W.6 admitted to have identified accused No. 7 (6th appellant) but that was because H he "used to buy milk from us". So the appellants quarried how could it have been that only P.W.4 had that cool nerve that evening to be able to identify them.

We agree with Mr. Mono that P.W.5 gave her reasons for being unable to identify any of the bandits. This is not surprising at all considering that P.W.5 was merely twelve I years old at the time when she was subjected to seeing her father flat on the floor groaning

in deep pain and hearing her mother crying as she was being manhandled by the A bandits. That was enough traumatic experience to make her avoid looking at the thugs. However, she supported her

mother in that she heard one of the robbers saying that it was the former watchman i.e. 1st appellant, who had told them that there was a lot of money in the deceased's house. As for D.W.6 he could not definitely identify anybody. From the first sound of B breaking into the house he sought refuge under a bed until he was fished out by one of the bandits.

We shall have more to say on this in the following ground of appeal. C

The second ground of appeal was that the identification by P.W.4 could not be relied upon. The first limb of contention was that the circumstances were not favourable for a proper identification. It was argued that it was night time with just hurricane lamps as sources of light and as for the outside there was moonlight. Then it was pointed out D that it was an intense moment of panic and horror. In addition to that, it was argued, P.W.4 was severely injured and

had to be hospitalised for a month from 14/6/1985 to 14/7/1985. All these factors, it was submitted, did cast a shadow on the correctness of the identification. E

Mr. Mono countered that by saying that P.W.4 had spent quite a long time with these people and at a very close range and so was able to photograph their identities on her mental film. The learned Senior State Attorney also pointed out that the first appellant had been her employee for about three months and she was therefore able to identify F him very easily and particularly as she had said that she recognised his voice when he told his colleagues that P.W.4 was dead.

There is a lot of merit in what Mr. Mono has said. P.W.4 had a good opportunity which was denied to P.W.5 and D.W.6. Besides, it is our considered opinion that however G horrifying a situation is there is a watershed mark and if that is reached then a victim overcomes his or her fear and measures up to the occasion. We believe P.W.4 after such languish sojourn with her persecutors she surpassed fear and as she said "Despite H the torture I remained alert in the mind and observed the bandits closely". Moreover, in this particular case the reliability of the identification of the appellants largely depended on the demeanour of P.W.4. This was the monopoly of the learned trial judge who believed P.W.4 and we will be wrong to fault her. I

Again the advocates of the appellants pointed out that after

the identification parade appellants 1, 2, 3, and 5 registered their complaints that A P.W.4 had known then before. Sarkar's Law of Evidence 13th ed. p.99 was cited as authority that an identification parade is useless if the persons put on the parade to be identified are known to the person who is to make the identification.

We concede that with respect to the first appellant. The identification parade was B superfluous. However, that could not be said to have been the case in respect of the remaining three appellants. These appellants knew P.W.4 as "Mama Maziwa". But that does not mean that P.W.4 must have known them too. Apart from her activity of selling C milk P.W.4 was the wife of a veterinary doctor. She was prominent enough to be known by all and sundry in the village but the reverse was not true. Had it been that P.W.4 knew the rest of the appellants before the identification parade and that was why she picked them out, then she should not have failed to identify the fourth appellant, D who is the brother of the fifth appellant, during the second parade. The fourth appellant too was a resident of that village, therefore according to the contention of the appellants, was known to P.W.4.

The third ground of appeal was that the statement of the first appellant to the Police, E Exh. P.15, and the extra judicial statement of the second appellant, Exh. P.1, were retracted and therefore required corroboration. Advocates, for the appellants cited a series of rather old authorities like R. v Mitilande (1940) E.A.C.A.46: Kimani and Others v R. (1954) 21 E.A.C.A. 316; and Etat v R. (1954) E.A.C.A. 330 to the F effect that the prosecution is to prove voluntariness of the statements.

We do not think that this should detain us even a bit. First, Exh. P.15 was produced by the first appellant himself as an exhibit when he was cross-examined by the prosecuting State Attorney and the defending counsel did not object. So it cannot now be heard G that the statement was

involuntary. Second, the two retracted statements can be safely relied upon under the authority of Tuwamoi v Uganda (1967) E.A. 84. The advocates of the appellants pretended not to be aware of this classic authority on retracted confessions. Third, and as Mr. Mono submitted, these two statements, which were H confessions, are saved by Section 29 of the Evidence Act, 1967. Lastly, since we have found that P.W.4 properly identified the authors of the two retracted statements as well as the other appellants then her evidence provides corroboration if that was required. I

The fourth ground of appeal was the need for corroboration.

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RAMADHANI JJA, OMAR JJA, MNZAVAS JJA

This was argued first in relation to the retracted confessions which we have already A dealt with. Them it was also submitted with respect to identification by single witness that is P.W.4. Our decision in Lusabanya Siyantemi v R. [1980] T.L.R. 275 was cited as authority for that. But there we said:

B It is a rule of practice, not of law, that corroboration is required of the evidence of a single witness of identification of the accused made under unfavourable conditions; but the rule does not preclude a conviction of the evidence of a single witness if the court is fully satisfied that the witness is telling the truth. C

Here we have amply demonstrated that the conditions were not unfavourable. Admittedly the learned trial judge did not openly say that she was satisfied that P.W.4 was telling the truth. Since this is a first appeal we can, and we hereby, cure that oversight for the reasons already advanced. So we find this ground, too, to be D baseless.

The fifth ground was that of alibi. But this, as was properly pointed out by Mr. Mono, largely concerned the first and the fourth appellants who gave due notice of alibi. Again here we dismiss this ground since we have believed P.W.4 and have found the two E retracted statement to be reliable.

After making the above findings we cannot but dismiss the appeal of the first and the second appellants forthright. Both have confessed to have participated in the commission of the crime. Also as for the third and fifth appellants apart from having F being implicated by co-accused persons i.e. the first and the second appellants in their confessions, they were identified by P.W.4.

The fourth appellant, Adam Mamboleo, was mentioned by the second appellant only and not by the first appellant. Also though he was on the second identification parade he G was not picked out by P.W.4. The only other piece of evidence which could implicate him is the statement of D/SSgt. Wilfred (P.W.7) who arrested him. P.W.7 said that he found the fourth appellant having locked himself in his room from without. P.W.7 did not break the door because he got the key from the mother of the fourth appellant. This H could be an incriminating factor. However, P.W.7 was very clear that he found the brother of the fourth appellant who is the fifth appellant hiding under a bed in a room locked from outside. But P.W.7 did not say so with respect to the fourth appellant. so that is to the credit of the fourth appellant. But also P.W.7 had to break the door of I John Magesa who was the sixth accused because he too had locked in

himself with a padlock outside his door. Yet this John was acquitted because the A house boy of the deceased, D.W.6, who picked him out at the identification parade, did so because John used to go to buy milk from P.W.4. Yet John was implicated by both the first and the second appellants. So we feel that Adam Mamboleo, the fourth appellant, is entitled to the benefit of B doubt. The fact that he had locked himself in could be explained otherwise than that he was involved in the murder of the deceased. We therefore quash his conviction of murder.

The sixth appellant, Hamadi Juma Kanyonga, was implicated by both the first and the C second appellants. Indeed the first appellant named him as one of the rapists of P.W.4. However, as he was not in either of the two identification parades.

We cannot say whether P.W.4 would or would not have identified him. Since he cannot be convicted solely on the confessions of co-accused persons-section 33(2) of the D Evidence Act, 1967 - we have to quash his conviction.

Therefore the appeals of the first, the second, the third and the fifth appellants are dismissed. The appeals of the fourth and the sixth appellants are allowed and it is ordered that they be released forthwith unless they are otherwise lawfully held. E

Before we finish we would like to comment in passing on the conviction of Julius Hamza Shimangwe for receiving stolen property c/s 311(1). Admittedly receiving is a lesser offence than murder but it is not a cognate offence with murder and therefore it was wrong to have made that substitute finding. It was held in Valezi Madageda v R. F (1954) 22 E.A.C.A. 389 that the offence of being an accessory after the fact to murder is minor to but not cognate with murder. That decision overturned R. v Sumbuso s/o Rulinde and Others (1948) 15 E.A.C.A. 99. If accessory after the fact to murder is G not cognate with murder then receiving stolen property is even more so. But as there is no appeal against that before us and as we have no revisional jurisdiction we leave that matter as it is.

H Order accordingly.

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[zRPz]FANUEL MSENGI v PETER MTUMBA 1992 TLR 109 (HC)

Court High Court of Tanzania - Singida
Judge Mwalusanya J

19 May 1992

Flynote

Criminal Practice and Procedure - Appeals- Right to appeal B

-Headnote

The respondent was acquitted by the District Court of the offence of cattle theft. The appellant, owner of the cattle, aggrieved by the decision of the District Court appealed to the High Court.

Held: (i) This was not a private prosecution, rather a public prosecution conducted C by the Director of Public Prosecutions, as such the complainant has no right of appeal - Section 378(1) Criminal Procedure Act No. 9 of 1985;

D (ii) where the criminal case originates from the Primary Courts under section 20(1)(a) of the Magistrates' Courts Act No. 2 of 1984 the complainant or the Director of Public Prosecutions may appeal to the District Court and to the High Court against an acquittal in a public prosecution.

Case Information

Appeal misconceived. E

[zJDz]Judgment

Mwalusanya, J.: The respondent Peter s/o Mtumba was acquitted by the Singida District Court for the offence of cattle theft c/ss 265 and 268 of the Penal Code Cap. 16. It was alleged at the trial that the respondent who is a Ward Secretary of the F Ward of Issuna had on 18/8/89 stolen a cow belonging to the complainant one Mr. Fanuel s/o Msengi who is now the appellant. Aggrieved by the decision of the District Court in acquitting the respondent, the complainant has now appealed to this court. G

This was a public prosecution conducted by the Director of Public Prosecutions (D.P.P.). It was not a private prosecution. That being the case the complainant has no right of appeal to this court. According to section 43 of the Magistrate's Court Act No. 2/1984 appeal from District Courts to the High Court have to be done in accordance H with the procedure stipulated in the Criminal Procedure Act No. 9/1985. Now according to section 378(1) of the Criminal Procedure Act No. 9/1985 only the D.P.P. may appeal against an acquittal to the High Court in respect of public prosecution. The complainant is not personally allowed to appeal in a public I

prosecution - what he can do is to ask the D.P.P. to appeal on his behalf. So the A appeal in this case was misconceived.

The position is different in respect of criminal cases originating from the Primary Courts. Under section 20(1)(a) of the Magistrates' Court Act No. 2/1984, the complainant or the D.P.P. may appeal to the District Court and to the High Court against an acquittal B in a public prosecution. However that is not the position in respect of criminal cases originating from the District Courts.

After reading the evidence on record I am of the view that the appellant may have a remedy by filing a civil suit against either the respondent or Copl. Michael (P.W.3) or C both, whom he alleges he entrusted the missing cow at a public auction. And he may call Amos s/o Misai as his witness whom he alleges was present when either the respondent or Copl. Michael was handed over the cow in question. He is at liberty to seek a redress in a civil court.

Be that as it may, this appeal is misconceived and incompetent. The appellant has no D right of appeal in law. The appeal is dismissed and struck off the register.

E Appeal dismissed.

F

[zRPz]SYLIVERY NKANGAA v RAPHAEL ALBERTHO 1992 TLR 110 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J

26 May 1992
Flynote
Criminal Practice and Procedure - Appeals - Appeal against acquittals originating in the G District Courts - Whether the complainant can pursue the appeal in the High Court.
Criminal Law - Criminal Trespass - Whether a charge of criminal trespass can succeed where ownership of the land has not been determined in a civil case.
Land Law - Land ownership - Whether a Criminal Court can determine matters of land H ownership.
-Headnote
Raphael s/o Albertho, the respondent was charged, in Singida District Court, with criminal trespass c/s 299(a) of the Penal Code. The appellant was the complainant. At I the end of the trial the Court acquitted the respondent and declared him the lawful owner of the
1992 TLR p111
MWALUSANYA J
disputed land. The complainant appealed to the High Court. Three issues required A determination. First, whether the complainant could in view of the provisions of sections 378(1) of the Criminal Procedure Act, appeal in person to the High Court of Tanzania. Second, whether a charge of criminal trespass can be sustained where the ownership of the land has not been resolved in a civil case. Third, whether it is competent for a B Criminal Court to determine matters of land ownership.
Held: (i) By virtue of section 378(1) of the Criminal Procedure Act, in public prosecutions only the DPP can appeal against an acquittal from cases originating in C the District Court;

(ii) a charge of criminal trespass cannot succeed where the matter involves land in dispute whose ownership has not been finally determined by a civil suit in a court of law;

D (iii) a Criminal Court is not the proper forum for determining the rights of those claiming ownership of land. Only a Civil Court via a civil suit can determine matters of land ownership.
Case Information
Appeal dismissed.
[zJDz]Judgment
Mwalusanya, J.: The appellant Sylivery s/o Nkangaa was the complainant at E Singida District Court where the respondent Raphael s/o Albertho was the accused charged of criminal trespass contrary to section 299(1) of the Penal Code Cap. 16. The accused (respondent) was acquitted of the offence he was charged with. Now the F complainant is appealing to this court against the acquittal.

This appeal is obviously misconceived. According to section 43(1)of the Magistrate's Court Act No. 2/84, appeals from the District Courts to the High Court have to be concluded in accordance with the virtue of section 378(1) of the Criminal Procedure G Act, in public prosecutions, only the Director of Public Prosecutions (D.P.P.) can appeal against a acquittal by the District Court. This was a public prosecution and therefore the complainant has no right of appeal. Therefore this appeal is misconceived and incompetent.

Even if the appeal was properly filed, still the appeal had to fail on merits. This was a H charge of criminal trespass. This court on numerous occasions has held that the charge of criminal trespass cannot succeed where the matter involves land in dispute whose ownership has not been finally determined by a civil suit in a court of law. In this case both the complainant and the respondent claim ownership of the land in dispute. The I respondent claims that it is

his clan land, while the complainant/appellant claims that he was lawfully allocated by A the village land allocating committee. That being the case, the charge of criminal trespass is not maintainable as the ownership of the land in dispute has not been resolved by a court of law in a civil suit. The rationale behind that doctrine is that under section 9 of B the Penal Code Cap. 16 the alleged trespasser is protected because he has an honest (bona fide) claim to the land in dispute, even though the claim may be mistaken. The honest claim of right can only be destroyed after a court of law in a civil suit determines who is the owner of the land in dispute. The learned Resident Magistrate was quite C alright in acquitting the respondent. However the learned Resident Magistrate was wrong to declare the respondent as the lawful owner of the land in dispute. A criminal court is not the proper forum for determining the rights of those claiming ownership of land. Only a civil court via a civil suit can determine matters of land ownership. D Therefore using my powers of revision, I will quash that part of the decision of the Resident Magistrate which declares the respondent as the owner of the land in dispute. The parties are at liberty to file a civil suit which will determine once and for all, who is the owner of the land in dispute.

In the event I hold that this appeal is misconceived and incompetent and therefore it is E dismissed. The order by the District Court declaring the respondent as the owner of the land in dispute is hereby quashed. The parties are at liberty to file a civil suit which will determine as to who is the lawful owner of the land in dispute.

F Appeal dismissed.

G

GOSBERT EDWARD RWEYEMAMU v TANZANIA WOOD INDUSTRY CORPORATION
1992 TLR 112 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Rubama J

26 May 1992 H

Flynote

Labour Law - Jurisdiction - Whether court has jurisdiction to stay proceedings in order to obtain labour officer's opinion whether a party is employed in the management of the business of the employer - Proper order. I

1992 TLR p113

RUBAMA J

The plaintiff sued the defendant, his employer, for wrongful termination of A employment. At the time of termination of services the plaintiff held the position of general manager. A preliminary objection was raised by the defendant that by virtue of s. 28(1) of the Security of Employment Act, 1964 the High Court had no jurisdiction to entertain the suit. Arguments were made as to the course of action open to the court. B

Held: In such circumstances the court should order stay of the suit leaving it open for either party to obtain the opinion of the labour officer under s.4(e) of the Security of Employment Act as amended by the Security of Employment (Amendment) Act, No. C 45 of 1969.

Case Information

Order accordingly.

Mrugaruga, for plaintiff D

Mulebya, for defendant

[zJDz]Judgment

Rubama, J.: Gosbert Edward Rweyemamu is suing Tanzania Wood Industry Corporation for wrongful termination of employment. He had been employed on two years contract and positioned at the time of his termination as General Manager of E Tabora Msitu Products Company Ltd. In the Written Statement of defence, Tanzania Wood Industry Corporation raise a preliminary objection that this court has no jurisdiction to entertain the suit as is provided by s. 28(1) of the Security of Employment Act Cap. 574. This raised objection was argued by Mrs. Mulebya, learned advocate F for the defendant. Mr. Mrugaruga, A Labour Officer appearing for the plaintiff replied.

Mrs. Mulebya submitted that by virtue of s.28(1) of the Security of Employment Act 1964, this court had no jurisdiction to entertain the suit. She quoted several cases that G had dealt with this question of ousting of jurisdiction: Kitundu Sisal Estate v Shingo and Others [1976] E.A. 557, a case decided by the Eastern Africa Court of Appeal; James Sankey v M/S Caltex Oil [1973] LRT n. 46 (Biron, J.); Walter Jager v Cordula Ltd. t/a Tanganyika Tourist Hotels and Oyster Bay Hotel [1972] H H.C.D. 133 (Onyiuke, J.). In reply Mr. Mrugaruga referred the court to the Security Employment (Amendment) Act, 1969 and some cases decided under it: Walter Jager v Corbula Ltd. t/a Tanganyika Tourist Hotels and Oyster Bay Hotel (supra) and David Kamugisha v Bukop Ltd. Civil case No. 49/90 (Mwanza Registry) I (unreported, Sekule, J) Mr.

1992 TLR p114

Mrugaruga submitted that the trial court is not expected to dismiss the plaint as called A upon by Mrs. Mulebya but stay the suit leaving either party seek the labour officer's opinion on

whether or not the plaintiff as in this case is in a managerial position. Mr. Mrugaruga went on to submit that the labour officer's opinion was obtained in the case B under consideration. I hasten to point out on this last submission that there is no record in the case file that supports the submission.

I have gone through all the cases referred to the court except for the case of David Kamugisha v Bukop Ltd. (supra). I could not lay my hands on this case C notwithstanding my efforts. On these decided cases, the prayer by Mrs. Mulebya cannot be granted. I dismiss the preliminary objection for want of merit.

Unlike as was the case in James Sankey v M/S Caltex Oil (supra) it is not that easy in the present case to determine the question of the jurisdiction of this court to hear and D determine the case before getting the labour officer's opinion of whether the plaintiff was employed in the management of the defendant's business or not. If the circumstances I go the way Onyiuke, J. went in the case of Walter Jager v Cordula Ltd. t/a Tanganyika Tourist Hotels and Oyster Bay Hotel (supra) and order stay of the suit E leaving it open, in the words of Onyiuke, J. in the case quoted above, at p. 136, "for other to obtain the opinion of the labor officer under section 4(e) of the Security of Employment Act as amended by the Security of Employment (Amendment) Act, No. 45 of 1969."

F Order accordingly.

1992 TLR p114

G

[zRPz]MWITA WAMBURA v REPUBLIC 1992 TLR 114 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Nyalali CJ, Ramadhani JA, Mapigano Ag JA

29 May 1992 H

Flynote

Criminal Practice and Procedure - Sentencing - Two convictions of murder - Whether I sentence must be in respect of the first conviction.

1992 TLR p115

NYALALI CJ, RAMADHANI JA, MAPIGANO AG.JA

The appellant was convicted of the murder of two persons, a husband and a wife. A The first and second convictions related to the deceased husband and wife, respectively. Then the learned trial judge imposed the mandatory sentence of death in respect of the second conviction. On appeal the propriety of imposing sentence in respect of the second conviction was questioned. It was argued that imposing sentence in respect of B the second conviction suggested that the judge harboured doubts in his mind as to the guilt of the appellant in relation to that court.

Held: (i) Where more than one count of murder have been charged, and convictions C entered on two or more counts, the practice has been to impose the death sentence in respect of the first of such convictions. It seems to us, however, that that is simply a matter of form. There is no

rule which makes it obligatory on the court to hand out the sentence in respect of the first conviction and it is not our desire to create one. The D choice of which count to pass the sentence on is a matter which is better left to the discretion of the trial judge;

(ii) reading the trial judgment it is clear to us that the judge was left in no reasonable doubt as to the guilt of the appellant on both counts. E

Case Information

Appeal dismissed.

Rugarabamu, for the appellant. F

Mussa, for the respondent.

[zJDz]Judgment

Mapigano, Ag. J.A., Nyalali, C.J. and Ramadhani, J.A.: This is a case of double murder. A man called Patrick Tyenyi and his wife Jenorever were brutally hacked to death in the night of 14th/15th September, 1985, in the Musoma Township. G Jenorever was found dead in a pool of blood inside the couple's house at Nyakato, while the dead body of Patrick was discovered a kilometre away. It is evident that H the couple was killed by bandits who raided their house in that night and that Patrick was killed by the bandits after being taken forcibly from the house or when he was giving chase. It is also evident that the injuries the couple sustained on the heads were inflicted by a sharp weapon.

The bandits made away with clothes, a blanket, a mosquito net and a gun which belonged to Patrick's employer and which was in his possession on account of his I employment.

1992 TLR p116

NYALALI CJ, RAMADHANI JA, MAPIGANO AG.JA

The appellant Mwita Wambura was charged with the murders of the couple on two A counts and tried by the High Court sitting at Musoma. Although the prosecution produced no eye witness to the incident the learned trial judge, Sekule, J., in a careful judgment, was of the opinion that there were three principal pieces of credible evidence B that established the following facts: (a) that the raiders were prosecuting a common design i.e. robbery; (b) that their common design extended to everything which in fact occurred in the course of the raid; (c) that the murders were committed in the course of the raid; and (d) that the appellant was a party to the raid and the murders. C

The first piece of evidence pertained to the appellant's possession of the articles that were stolen from the couple's house a few hours after the raid. There was credible evidence that the appellant accompanied by two other men who evaded arrest brought D the stolen articles to the house of PW.2 Nyamtondo in the night of the raid. Some of the articles were blood-stained. There was also credible evidence that the trio came to that place carrying two pangas, also blood-stained, and a knife.

In effect the appellant failed to explain to the Court how he acquired possession of the E stolen goods. Under our criminal law the unexplained possession by an accused person of the fruits of a crime recently after it has been committed is presumptive evidence against the accused not only on the charge of theft or receiving with guilty knowledge, but of any aggravated crime like murder as well, when there is reason for concluding F that such aggravated and minor crimes

were committed in the same transaction. And the force of this presumption is greatly strengthened if the property consists of a number of miscellaneous articles.
The second piece of evidence was the appellant's possession of the blood-stained G weapons, weapons which were eminently capable of inflicting wounds of the kind that the deceased couple sustained.
The third piece of evidence was the conduct of the appellant when he was confronted by the neighbours of PW.2 in the following morning. It was in evidence that upon H realizing that he was about to be apprehended he promptly fetched the stolen gun from the house of PW.2, gathered the other stolen articles and then took to his heels, threatening to shoot his pursuers with the gun.
Accordingly, the learned judge convicted the appellant on both courts. The judge was I fully aware that under our law he was obliged to pass a sentence of death, which is mandatory, on only one count.
1992 TLR p117
NYALALI CJ, RAMADHANI JA, MAPIGANO AG.JA
So he pronounced the sentence in the following terms: A

Mwita Wambura, I have found you guilty and convicted you of two counts of murder ... I hereby sentence you to suffer death by hanging until you die in respect of the murder of Jenorever w/o Patrick Tyonyi. You are so sentenced. B

It is to be observed that the murder of Jenorever was the subject matter of the second count.
The appellant has appealed to us against the decision of the trial judge. On his behalf Mr. Rugarabamu, learned advocate, filed two grounds. However at the start of C hearing Mr. Rugarabamu announced that he was dropping one of the grounds, and this did not come to us as a surprise, given the abundance and quality of the materials on record.
The ground that remains to be considered is that "if the conviction on Court No. 1 D was sound there was no plausible reason why the learned judge chose to sentence the appellant to suffer death on Court No. 2". In his short address Mr. Rugarabamu has made two points in that regard. The first point is that the trial judge erred when he passed sentence on the second count. In his submission the judge should have passed E the sentence on the first court instead. In answer to a question from the bench Mr. Rugarabamu has readily conceded that there is no benefit that will ensure to the appellant if we sustain this point.
The second point is a sequel to the first and it is that the judge's choice to hand down F the sentence on the second count is indicative of a state of misgiving in the judge's mind about the guilt of the appellant on the first count.
We agree with Mr. Mussa, learned Senior State Attorney who resisted the appeal, and hold that there is no substance in the two points raised by Mr. Rugarabamu. We G knew that in most cases where more than one count of murder have been charged, and convictions entered on two or more counts, the practice has been to impose the death sentence in respect of the first of such convictions. It seems to us, however, that that is simply a matter of form or wont. There is no rule which makes it obligatory on the H Court to hand out the sentence in respect of the first

conviction, and it is not our desire to create one. In our view the choice of which count to pass the sentence on is a matter which is better left to the discretion of the trial judge.
Reading the trial judgment it is clear to us that the judge was left in no reasonable I doubt as to the guilt of the appellant on both
1992 TLR p118
counts. This is how he concluded the judgment: A

The accused and the other persons, each one of them therefore is responsible for deaths of the deceased persons under the doctrine of common intention ... Like the gentlemen assessors, I am satisfied that the case against the accused person has been proved B beyond reasonable doubt. I would and do hereby find the accused guilty of murder on both counts and I convict him accordingly.

That was an explicit finding and we have been unable to accept the proposition that C the terms of the sentence derogated from it and implied that the judge was somewhat uncertain about the validity of the conviction on the first count. In any event in our assessment we entertain no doubt whatever that the judge reached the right decision. Certainly the proven incriminating facts excluded all reasonable likelihood of the D appellant's innocence on both counts.

E Appeal dismissed.

1992 TLR p118

F

[zRPz]MWITA NYAMHANGA v REPUBLIC 1992 TLR 118 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Nylali CJ, Ramadhani JA, Mapigano Ag. JA

29 May 1992

Flynote

Criminal law - Murder - Appellant had inflicted grievous cut wound - Cause of death was G respiratory failure caused by tetanus - Whether the wound caused the tetanus.

Criminal Practice and Procedure - Charges - Murder - Date of charge - Whether date or unlawful act or death.

-Headnote

The appellant, using a panga, inflicted a cut wound on a person who later died H because of tetanus. He was convicted of murder by the High Court. On appeal he challenged the conviction arguing that there was no evidence to connect the cut wound and tetanus which ultimately caused the death of the deceased. The Court Appeal I also considered the proper way of framing charges in case of murder.

1992 TLR p119

RAMADHANI JA, NYALALI CJ, MAPIGANO Ag, JA

Held: (i) We cannot say beyond reasonable doubt that the wound by the appellant A caused tetanus. There is evidence that the deceased had fever before the attack by the appellant;

(ii) the date of the charge is that of the unlawful act and not that of the death. B

Case Information

Appeal allowed.

Rugarabamu, for the appellant.

Malamsha, for the respondent. C

[zJDz]Judgment

Ramadhani, J.A., Nyalali, C.J. and Mapigano, Ag. J.A.: It has never been in dispute both in the High Court of Tanzania at Musoma (Masanche, J.) and before us that the deceased, Sokoture s/o Chacha, died because of tetanus and that the appellant, Mwita Nyamkanga, had on 14/4/86 inflicted a grievous cut wound on the deceased D by means of a panga. Equally it is settled that the deceased met his untimely death on 25/4/86, that is, some eleven days after the wounding.

The point of serious contention, which has brought the appellant to this Court, as it was allegiantly canvassed for him by Mr. Rugarabamu, learned advocate, was whether E tetanus was brought about by the wound inflicted by the appellant or that death was hastened by that wound.

The post-mortem report (Exh. P.1) merely said that the cause of death was "respiratory F failure caused by tetanus". Mr. Rugarabamu said that the report did not give the cause of tetanus and the doctor who performed the examination was not called to testify. The learned Counsel referred us to two medical treatise: A Text-book of Bacteriology by Fair brother and Tylor at page 367 and "Lecture Notes on Pathology" by Thomson and G Cotton at page 30. Both of these authorities state that the incubation period for tetanus is a minimum of eight days. Mr. Rugarabamu pointed out that the eleven days which elapsed between the wounding by the appellant and the death of the deceased is within the span of time of incubation if tetanus had resulted from that wound. However, H he argued that the two extracts he had produced do not say what is the maximum incubation period nor do they indicate after how many days from the time of injury or when symptoms have appeared is death likely to result. So, Mr. Rugarabamu submitted that there is no evidence that the wound inflicted by the appellant caused that I

tetanus or that that wound hastened the death of the deceased in any way. A

For the respondent/Republic was Mr. Malamsha, learned State Attorney, who conceded the omission pointed out by Mr. Rugarabamu but made a fervent prayer that we exercise our powers under Section 4 (2) of the Appellate Jurisdiction Act, 1979 B and do what the High Court could have done, that is call the author of the post-mortem report to testify or order the High Court to hear him on that point.

Mr. Rugarabamu objected to that prayer but conceded that this Court could do that C suo moto. Alternatively, Mr. Rugarabamu agreed that the appellant could be found guilty of causing grievous harm c/s 225 of the Penal Code.

We agree with Mr. Rugarabamu that we cannot say beyond reasonable doubt that the wound by the appellant caused tetanus. There is evidence that the deceased had fever D before the attack by the appellant. We do not know what caused that fever.

We toyed with the idea of taking additional evidence but decided against it. We are a shade unsure of its usefulness. We do not know whether the medical officer who performed the examination could, if recalled, be able to know when the deceased E showed the symptoms of tetanus and give his opinion as to whether that tetanus could or could not have been caused by the wound inflicted by the appellant. This is taking into account that it is six years now since the examination was done. We are also aware of the fact that the appellant has been under the gloom of uncertain fate for the same F length of time. We feel that we should not prolong his ordeal. So we quash the conviction of murder and set aside the sentence of death. We find him, instead, to be guilty of causing grievous harm c/s 225 of the Penal Code and sentence him to imprisonment for a term of six years. G

We have one small but vital remark to make. The information contained the following particulars of offence:

Mwita s/o Nyamhanga on or about the 25th day of April, 1986 at Nyarwana Village, in the H District of Tarime in Mara Region murdered one Sekoture s/o Chacha.

Now, 25/4/1986 was the date the deceased died but that was not the date when the appellant inflicted the injury on the deceased. That was 14/4/1986, as already said. It I has been established long

time age by R. v Lujo s/o Mgombe (1946) 13 EACA 156 that the date of the A charge is that of the unlawful act and not that of the death. We wish to remind those responsible for filing information about this requirement.

B Appeal allowed.

1992 TLR p121

C

[zRPz]MT. 7479 SGT. BENJAMIN HOLELA v REPUBLIC 1992 TLR 121 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Nyalali CJ, Ramadhani JA, Mapigano Ag. JA

29 May

Flynote

Criminal law - Murder - Spent cartridges of sub-machine gun found 3 to 4 paces from D dead body - Whether accidental killing.

Criminal Practice and Procedure - Preliminary hearing - Contents of memorandum not read and explained to accused - Effect - Section 192(3) of the Criminal Procedure Act.

-Headnote

The appellant was charged with and convicted of murder and sentenced to suffer E death by hanging. He appealed against both conviction and sentence. There were two pieces of evidence which among others, grounded his conviction. The first piece was contents of a memorandum by which the appellant was said to have admitted under F section 192(3) of the Criminal Procedure Act, 1985. The contents of the memorandum were not read and explained to the appellant. The second piece of evidence was spent cartridges of the appellant's sub-machine gun which were found 3 to 4 paces away from the dead body. The appellant argued that there was a struggle between him and the G deceased for control of the gun in the process of which two bullets accidently got discharged and hit the deceased.

Held: (i) Section 192 (3) of the Criminal Procedure Act, 1985 imposes a mandatory duty that the contents of the memorandum must be read and explained to the H accused. Since the requirements under section 192(3) were not complied with the provisions of section 192 (4) of the Criminal Procedure Act cannot apply;

(ii) the fact that the two spent cartridges were found by PW1 to be 3 to 4 paces from the body of the deceased is consistent with the appellants story that in the course I of a struggle for control of the

1992 TLR p122

gun two bullets accidentally got discharged and hit the deceased; A

(iii) the appellant has succeeded to raise a reasonable doubt concerning the shooting evidence.

Case Information

Appeal allowed. B

Magongo, for the appellant.

Kaduri, for the respondent.

[zJDz]Judgment

Nyalali, C.J., Ramadhani, J.A. and Mapigano, Ag. J.A.: The appellant, No. MT C 7479 Set. Benjamin Holela, was charged and convicted in the High Court at Tabora for the offence of murder c/s 196 of the Penal Code and sentenced to the mandatory sentence of death by hanging. The proceedings were a retrial consequent upon an earlier order by this Court declaring the earlier proceedings a nullity and directing a trial de D novo. The appellant is aggrieved by the decision of the High Court in convicting and sentencing him. Hence this appeal to the Court. Mr. Magongo, learned advocate, represented the appellant before us, whereas Mr. Kaduri, learned Senior State Attorney, appeared for the respondent/Republic. Only one ground of appeal was E submitted by Mr. Magongo for the appellant. The appellant however, had earlier submitted three grounds of appeal from jail.

Only one issue is in dispute in this case, and that is whether the appellant shot the deceased with his sub-machine gun or whether the bullets which fatally hit the F deceased were discharged accidently from the gun.

It is undisputed between the parties in this case that on the 9th August 1984, one Paulo s/o Mbigusula got fatally shot with two bullets in Migato Village, Bariadi District. At the material time, the appellant was a soldier in the Tanzania People's Defence Forces, G more popularly

known by its acronym as T.P.D.F., and was in charge of militia trainig of villagers in a compaign against rempant banditry in the area. On the material day, the appellant, accompanied by another soldier, namely, Private Zacharia Kasubi intercepted a group of people whom he suspected of banditry. Among this group was the H deceased, together with the second prosecution witness, namely Makingo s/o Sabila, and the third prosecution witness, namely, Mazahabu s/o Selesi, hereinafter described simply as PW.2 and PW.3. After intercepting them the appellant ordered them to return I to Migato Village shops. Sometimes later, the deceased and two of his companions, took to their heels. The appellant gave chase

to the deceased, at first on foot, and later on bicycle. A

Furthermore, it is not in dispute that the appellant discharged several shots in the air as warning shots before the deceased stopped, turned round and walked back towards the appellant, with his arms raised. Soon thereafter, the deceased got shot in the chest and his left leg. He died on the spot. Subsequently, the appellant sent a written message to B his District Chief Militia Officer and to the Police Officer In-Charge of Police Station, Bariadi, in which he made a report concerning the incident. A Police Officer, that is the first prosecution witness, namely, No. B 6419 Corporal Amatus, hereinafter described simply as PW.1 visited the village, met the appellant and visited the scene of the C incident.

With regard to the only issue in this case, it was the prosecution case at the trial that the appellant shot the deceased dead, after the deceased had surrounded and was walking back towards the appellant with his hands up. The defence case at the trial on the D other hand asserts that as the deceased thus approached the appellant, the deceased suddenly jumped upon the appellant, kicked him and seized the appellant's sub-machine gun. In the struggle that ensued for control of the gun, two bullets accidently got discharged and hit the deceased. E

The material evidence on this issue consists of the matters admitted under Section 192 of the Criminal Procedure Act, 1985 together with the testimony of PW.1, PW.2 and PW.3; as well as the two spent cartridges found at the scene of the incident, and the message sent by the appellant and which was tendered at the trial as exhibit P.2. F

Let us start with the matters admitted in the preliminary hearing under Section 192 of the Criminal Procedure Act. Under sub-section (3) it is provided:

G At the conclusion of a preliminary hearing held under this section, the Court shall prepare a memorandum of the matters agreed and the memorandum shall be read over and explained to the accused in a language that he understands, signed by the accused and his advocate and by the public prosecutor, and then filed. (emphasis supplied) H

It is obvious from those provisions that the contents of the memorandum have to be read and explained to the accused, and that duty is mandatory. The record of the trial proceedings however does not indicate compliance with this duty. We take it that there I was non-compliance.

Under sub-section (4) it is provided that: A

Any fact or document admitted or agreed (whether such fact is mentioned in the summary of evidence or not) in a memorandum filed under this section shall be deemed to have been duly proved ... B

The question that arised here is whether the above emphasized provisions apply where there has been a non-compliance as is the situation here. We are settled in our minds that the above emphasized provisions do not apply where it has been a failure to read C and explain the contents of the memorandum to the accused.

The necessity to read and explain the memorandum to the accused is highlighted by the provisions of rules 4 and 6 of the Accelerated Trial and Disposal of cases Rules, 1988 made under section 192 (6) and published under Government Notice No. 192 of 1 D July 1988. Under Rule 4 it is provided:

The person prosecuting shall in every trial under those rules, prepare, as clearly as possible, the facts of the case which shall be read to the accused and explained in a E language he can understand.

Under rule (6) it is provided:

F When the facts of the case are read and explained to the accused, the Court shall ask him to state which of those facts he admits and the trial magistrate or judge shall record the same.

It is apparent that a statement by counsel or advocate for the accused to the effect G that the matters raised are admitted is not sufficient under the law. It is the accused himself who must indicate what matters he or she admits. In cases where the matters comprise documents, the contents of the documents must be read and explained to the accused, in the event of a sketch plan or such like documents, the sketch plan must H be explained and shown to the accused to ensure that he or she is in a position to give an informed response.

The second piece of evidence consists of the testimony of PW.1 who testified to the I effect that when he met the appellant, the latter admitted killing someone suspected of being a bandit. This

testimony was challenged under cross-examination by Mr. Mbussa, learned advocate A for the appellant at the trial. The Defence suggested that the appellant had told PW.1 that the deceased died by bad luck. Under those circumstances, and bearing in mind the defence story, the testimony of PW.1 on this point has to be treated with caution.

The third piece of evidence for the prosecution is the testimony of PW.2 and PW.3 B who claim to have seen the appellant shoot the deceased as the latter surrendered. PW.2 claims to have been 60 paces from the incident and to have seen the appellant shoot the deceased from a distance of about 20 - 30 paces. PW.3 on the other hand claims to have been about 200 paces from the incident and to have seen the appellant C shoot the deceased from a distance of 7 paces. We think the testimony of PW.2 and PW.3 has to be treated with caution, since it is inexplicable how PW.2 and PW.3 came to be so separated from each other at the time they claim to have observed the incident, in the light of the evidence which suggests that PW.2 and

PW.3 stayed together when D the deceased and two of his companions bolted from the custody of the appellant.

The fourth piece of evidence for the prosecution on this point is exhibit P.2. That message reads inter alia:

E "... Majambazi manne tuliyakamata jana tarehe 09 August 84 saa 1530 HRS (.) wawili (2) kati yao walikimbia (CNA) mmoja tulimfukuza umbali wa kl. mbili na nusu (.) na tulimpiga risasi na kufa (.) mmoja alitoweka kabisa (.) walibaki wawili nao walijaribu kutoroka na walinzi usiku walifaulu ... Aliyekufa ni Paulo Mpigisule ..." F

In our view the contents of this message are ambiguous in a material particular. According to the message, the appellant and some other person or persons shot the deceased. On the face of it, it contradicts the other evidence adduced by the G prosecution which suggests that the appellant alone shot the deceased. It is therefore unsafe to rely on exhibit P.2 without corroboration by independent evidence. Since we have found that the testimony of PW.2 and PW.3 requires to be treated with caution, it H cannot be used to corroborate exhibit P.2.

The fifth piece of evidence comprises the spent cartridges found at the scene of the deceased. This has been a hot point of contention by the appellant, not only in his evidence at the trial, but also when we allowed the appellant in person to supplement the I submissions made by counsel on his behalf. We allowed him to do

so under Rule 3 (2) of the Tanzania Court of Appeal Rules 1979, on the basis that he A was being represented on a deck brief and not by counsel of his own choice. The appellant used the opportunity very well. He argued that had he shot the deceased in the manner stated by PW.2 and PW.3, the two spent cartridges would have been found far away from the spot where they were found by PW.1, since cartridges from a B sub-machine gun of the type in question tend to fall some 3 or 4 paces backwards from the position of firing the gun. The fact that the two spent cartridges were found by PW.1 to be 3 to 4 paces from the body of the deceased in consistent with the appellant's C story.

We think the appellant has succeeded to raise a reasonable doubt concerning the shooting evidence. It was for the prosecution to show beyond reasonable doubt that the relative positions of the deceased and the two spent cartridges were consistent with the deceased being shot by the appellant in the manner described by PW.2 and PW.3 - D that is, deceased being shot at from the distances stated by PW.2 and PW.3. This the prosecution apparently failed to do.

Finally, we end with the single ground of appeal contained in the memorandum of E appeal filed by counsel for the appellant. We do not think that the failure by the prosecution to call Private Zacharia to testify justifies any adverse inference being drawn against the prosecution in the circumstances of this case, where there is no suggestion by the evidence that Private Zacharia was in a better position than PW.2 and PW.3 F regarding the shooting incident.

In the final analysis therefore, we are satisfied, like the two gentlemen assessors who assisted the trial judge, that the prosecution did not prove its case beyond reasonable doubt. We

consequently allow the appeal, quash the conviction, set aside the G sentence and direct the immediate release of the appellant from jail unless detained therein for other lawful course.

H Appeal allowed.

1992 TLR p127

A

[zRPz]COSMAS CONSTRUCTION CO. LTD v ARROW GARMENTS LTD 1992 TLR 127 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Makame JA

6 June 1992

Flynote

Civil Practice and Procedure - Proceedings ex-parte - Right of absent party to notice of B judgment.

Civil Practice and Procedure - Court of Appeal Rules - Extension of time within which to institute appeal - Essential information not disclosed - No sufficient reason given. C

-Headnote

This was an application, by the applicant company, for extension of time to institute an appeal. The proceedings giving rise to this application were heard by the High Court in the absence of the applicant, the applicant having refused to accept service of D summons. It was in evidence that the applicant was not given notice of judgment. On appeal it was submitted by counsel for the respondent that the High Court had no obligation to notify the applicant of the date when the judgment was going to be delivered. In his application for extension of time the applicant said that he was not given E notice of judgment but did not disclose when he got to know of the existence of the judgment.

Held: (i) A party who fails to enter an appearance disables himself from participating when the proceedings are consequently ex-parte, but has to be told when the F judgment is delivered so that he may, if he wishes, attend to take it as certain consequences may follow;

(ii) without disclosing when the applicant got to know of the existence of the judgment it is not possible to gauge the extent of the delay. No sufficient cause for the delay has been established. G

Case Information

Application dismissed.

Maira, for the applicant.

Lamwai, for the respondent. H

[zJDz]Judgment

Makame, J.A.: This is an application for extension of time within which to institute an appeal, brought by Cosmas Construction Company Limited represented by Mr. Maira, learned advocate. It is being resisted by Dr. Lamwai, learned counsel, on behalf of the I respondent Company, Arrow Garments Limited.

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MAKAME JA
The applicant was one of three respondents in the High Court in Misc. Civil Cause 54 A of 1989 in which the respondent alleged that it had been defrauded of a plot of land by one of its directors, one Kunda Isai Mwasha, the second respondent, who in turn sold it to the present applicant, then the third respondent. In the High Court the present B respondent petitioned for rectification of the Land Register under section 99(b) of the Land Registration Ordinance, Cap. 334, so that the memorial entered in favour of the present applicant is struck out.
The second respondent in the High Court, Kunda Isai Mwasha, evidently central in the C whole situation, made some effort to resist the Petition but eventually he left matters mid-air. According to the record, the applicant simply did not bother. Going by an endorsement on the summons, returnable on 15th July 1989, the applicant refused to accept service and thereafter, throughout the proceedings, never appeared. Proof D against the applicant was therefore ex-parte and the hearing closed on 25th June 1991. By then, or thereafter, the learned trial judge, Masanche J. was stationed out of Dar es Salaam and he composed the judgment at Musoma on 1st August 1991. It was delivered in Dar es Salaam by Kaijaga, Ag. SDR, on 17th October 1991. According to E the Coram for that day Dr. Lamwai was there, for the applicant, and Mrs. Sinda or Pinda was present "for the 4th Respondents", (Sic). This does not make sense at all, for there was never a fourth respondent at any stage and so the record fails to contradict the applicant's contention that the judgment was delivered in his absence. F
Dr. Lamwai has submitted before me that the High Court had no obligation to notify the applicant of the date when judgment was going to be delivered. With respect, that view cannot be correct. A party who fails to enter an appearance disables himself from participating when the proceedings are consequently ex-parte, but that is the farthest G extent he suffers. Although the matter is therefore considered without any input by him he is entitled to know the final outcome. He has to be told when the judgment is delivered so that he may, if he wishes, attend to take it as certain consequences may follow. H
In the present matter the applicant was not present and there is no proof that he was served with a copy of the Notice of Judgment dated 7th October 1991.
On the other hand, and quite seriously, the applicant has held back information he I should have supplied if he really wanted to have time extended. Just as he did not quite come out and say in so
1992 TLR p129
many words that the proceedings were ex-parte - he said, instead, he was A unfortunately absent - he does not say when he eventually got to know that the judgment had been delivered. Both Mr. Subash Patel's affidavit and Mr. Maira before me were conveniently silent on this vital aspect of the matter. Judgment was delivered on 17th October 1991. The Affidavit in support of the motion was not sworn until 17th March B 1992. How can one know how long the applicant kept quiet after knowing the outcome? How can I agree that the applicant could not have instituted an appeal because he 'could not have complied with Rules 76, 77 and 83' - the Rules which impose time - scales? Mr. Maira is an experienced lawyer and it is difficult to see how C

he could have expected his client to have time extended without disclosing when he got to know of the existence of the judgment. It is not possible to gauge the extent of the delay.
I am unable to hold that sufficient cause for the delay has been established and so I dismiss the application, with costs. D
Application dismissed.
1992 TLR p129
E
[zRPz]ARCHARD v ASTERIA MULWANI AND THOBIAS TEGAMAISHO 1992 TLR 129 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Omar JJA, Ramadhani JJA, Mapigano Ag. JA

F
9 June 1992
Flynote
Customary Law - Bahaya Customary law - Whether a woman can sell clan land. G
Civil Practice and Procedure - Powers of the High Court - Whether the High Court can make any decision or order that could be made by the court of first instance. H
-Headnote
The first respondent, a woman, sold clan land to the second respondent who did not belong to the same clan. It was not contested that the first respondent being a woman could not, in Bahaya customary law, dispose of clan land. The appellant clan member, I sued both respondents for recovery of the said clan land in
1992 TLR p130
RAMADHANI JJA, OMAR JJA, MAPIGANO Ag, JA
Kamachumu Primary Court. The court nullified the sale and gave the land to the A appellant. The two respondents appealed separately to the District Court of Muleba which gave contradictory judgment. The appellant appealed to the High Court which set aside the District Court's decision, restored that of the Primary Court with justification that the disputed land be restored to the clan and not the appellant in person. The B appeallant appealed to the Court of Appeal arguing that the High Court erred in rectifying the judgment of the Primary Court.
Held: Under section 29 (c) of the Magistrate's Courts Act of 1984 the High Court C has powers to make any decision or order which might have been made by the court of first instance.
Case Information
Appeal dismissed. D
Rweyemamu, for the Appellant
Augustino Tegamaisho appeared with power of Attorney on behalf of the first respondent
[zJDz]Judgment
Ramadhani and Omar, JJ.A. and Mapigano, Ag. J.A.: It was not in dispute that E the first respondent, Asteria Mulwani, sold some clan land to the second respondent, Thobias Tegamaisho, who though a member of the larger family does not belong to the same clan or

Ihiga as they call it in Bukoba. It was also not contested that the first respondent being a woman could not in Bahaya customary law dispose of clan land. F A woman has the right of possessing and utilizing clan land for the duration of her life. The appellant was aggrieved by that sale by the first respondent who is his paternal aunt. The appellant filed a suit in the Primary Court of Kamachumu and sought to nullify that G sale and restore the land to the clan.

The trial court nullified the sale and ordered that "shamba lirudi mikononi mwa mdai". That is: the land to revert into the hands of the plaintiff (now the appellant). The respondents were aggrieved and each appealed separately. Thus there were Civil Appeal No. 52/86 and Civil Appeal No. 53/86 before the District Court of Muleba. H The two were, and properly so, consolidated by the Senior District Magistrate. However, at the end of the day the learned Magistrate issued under his hand two separate and contradicting judgments.

The appellant appealed to the High Court where all parties agreed that there was a I gross irregularity. So, Mwalusanya, J.

nullified both judgments of the District Court. The learned judge had this to say: A

> In view of the fact that the decision of the District Court has been set aside, I therefore order that the decision of the trial court is restored and so it prevails. The land in dispute B reverts to the clan. The 1st respondent should hold it in usufruct i.e. for her life time...

That order of the learned judge that the first respondent should have life-time use of the land aggrieved the appellant and hence this appeal. There is only one ground of C appeal on a point of law and that is that the learned judge, after he had declared the two judgments of the District Court null and void, erred in rectifying the judgments of the Primary Court as if there was an appeal before him instead of ordering a re-hearing of the appeal by the District Court. D

The appellant was represented by Mr. Rweyemamu, learned advocate, who said that the learned judge should have stopped at the point of declaring that the judgment of the Primary Court was restored. He argued that it was wrong for the learned judge to E have gone on to rectify the judgment of the Primary Court. The only course open to the judge, Mr. Rweyemamu submitted, was to permit an aggrieved party to go back to the District Court on appeal. He cited Kasusura and the Attorney General v Kabuye [1982]T.L.R. 338 as authority for the proposition that if a judgment is fatally defective F then there is really no judgment and the only course is the unusual one of setting it aside and ordering a retrial. Mr. Rweyemamu argued further that the High Court could not even step into the shoes of the District Court and do what that court could have done. The learned counsel distinguished the present appeal from Morali and Others v R. G [1971] H.C.D. No. 145. He argued that in Morali there was a judgment but here was no judgment.

On behalf of the first respondent was Mr. Augustino Tegamaisho with powers of attorney to act for her. He contended that the High Court was right in doing what it did H by virtue of section 29(c) of the Magistrates' Courts Act, 1984 (No. 2 of 1984).

The second respondent appeared in person and said that he had nothing to submit as he is no longer an interested party because he has already relinquished the piece of land in issue and that he has been refunded the purchase price he had paid for the plot since I 20/11/1987.

1992 TLR p132

RAMADHANI JJA, OMAR JJA, MAPIGANO Ag, JA

Part III of the Magistrates' Courts Act, 1984 deals with appeals from the Primary A Courts. Powers of the High Court on such appeals are provided in section 29 and what is of particular significance here is paragraph (c) thereof which Mr. Tegamaisho referred us to. That provides as follows:

B 29. In the exercise of its appellate jurisdiction under this Part, The High Court shall have the power -

(a) ...

(b) ...

C (c) make any other decision or order which might have been made by the court of first instance.

Thus in dealing with appeals emanating from the Primary Courts the High Court has the power to make any other decision or order which the Primary Court could have made. D This is crucially important. The decision or order that Mwalusanya, J. made is the one which could have been made by the Primary Court. In fact that order was one which the Primary Court should have made. The prayer, as was properly pointed out by Mr. Tegamaisho, was that the land be returned to the clan. But the Primary Court gave it E to the appellant who at no time had control over it. Besides it is the Bahaya customary law that the first respondent is entitled to use the clan land for her lifetime. Now that is what Mwalusanya, J. ordered.

Mr. Rweyemamu submitted that the High Court could not do what it did since there F was no judgment of the District Court. With respect we do not think so. He referred us to our judgment in Kasusura and the A.G. v Kabuye. But that case is distinguishable from the present one. The circumstances are totaly different as the following passage at p. 339 illustrates:

G We have seriously considered whether we could assess the evidence of the witnesses from the typed record. We however are of the view that it is not possible to do so. We do not have the opportunity of seeing and hearing the witnesses. The trial judge should have evaluated the evidence of each of the witnesses, assessed their credibility and made a H finding on the contested facts in issue. He did not do so. In some cases an appeal court can be in as good a position as a trial court in evaluating the evidence of witnesses, but this is not one of those instances. We have therefore no relevant material before us to I base any finding. (emphasis provided).

1992 TLR p133

RAMADHANI JJA, OMAR JJA, MAPIGANO Ag, JA

The situation in this appeal was that Mwalusanya, J. had at his disposal all that we A complained not to be available to us in the

Kasusura's appeal. The Primary Court of Kamachumu, which tried the case, made them available. Thus though Mwalusanya, J. nullified both judgments of the District Court, he still

had relevant material before him on which to base the order he gave. Besides, what were nullified were the judgments while the proceedings before the B District Court were left intact. Mr. Rweyemamu tried to distinguish the present appeal from that of Merali to which we drew his attention. In Merali the East African Court of Appeal set aside the order for a re-trial given by the High Court of Tanzania and then considered the three options it C had. Two of those options are relevant here and these are: to order a re-hearing of the appeal or to deal with the appeal on its merits. The Court of Appeal decided to do the latter citing section 3(2) of the Appellate Jurisdiction Ordinance (Cap. 451) which gave D it power to step into the shoes of the High Court from which the appeal proceeded. This was what in effect Mwalusanya, J. did under section 29(c) of the Magistrates' Courts Act, 1984 though he did not say so. In fact section 29(c) gives the High Court more powers than these of this Court under section 4(2) of the Appellate Jurisdiction E Act, 1979 (in pari materia with section 3(2) of Cap. 451 cited in Merali's case). The Court of Appeal can only do what the court from which the appeal comes could have done. But the High Court can do what the original court i.e. the Primary Court, and not the District Court, could have done. F

This appeal must then fail. The order of Mwalusanya, J. that:

> The land in dispute reverts to the clan. The 1st respondent should hold it in usufruct i.e. for her life time. If the 1st respondent does not take possession of the same, then the clan G council should sit and decide to allocate it to the deserving heir in the clan.

is upheld. The appeal is dismissed with costs.

H Appeal dismissed.

1992 TLR p134

A

[zRPz]MARWA NGEGA v KIRIMAMASE AND OTHERS 1992 TLR 134 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Omar JJA, Ramadhani JJA, Mapigano Ag JA

9 June 1992 B

Flynote

Peoples Militia Law - Sungusungu - Whether may order compensation - Peoples' Militia Laws 1989.

-Headnote

The appellant was alleged to have stolen a village grinding machine. After his arrest by C the sungusungu, he appeared before the Baraza la Jadi, a sungusungu organ, where he was "found guilty" of stealing the machine and ordered to compensate the village in the sum of shs. 60,000/=. He paid the amount. Then he appealed to the High Court where he was not successful, hence the appeal to the Court of Appeal. Among other D things the Court of Appeal looked into the scope of powers given to sungusungu under the relevant law.

Held: (i) The Baraza la Jadi, a sungusungu organ, went beyond its powers when it compelled the appellant to make the compensation;

E (ii) the money paid as compensation was refundable to the appellant.

Case Information

Appeal dismissed.

Rugarabamu, for the appellant. F

[zJDz]Judgment

Omar and Ramadhani, JJ.A. and Mapigano, Ag. J.A.: This action relates to the loss of a grinding machine which was the property of the Masurura Ujamaa Village situate in Musoma District, the proceedings of a Baraza la Jadi in respect of the G machine and the upshots of those proceedings.

The chronology is a follows. The machine was stolen on December 12, 1986, during the night and it was never recovered. Several informations were subsequently laid to the secretary of the village, the third respondent Simon Warioba, which implicated six H youths, the appellant included. On July 31, 1987, the appellant was apprehended by members of the local Sungusungu group and brought before a meeting of the Baraza la Jadi. The said meeting was chaired by the first respondent Kirima Maso, the secretary was the third respondent, and the fourth and fifth respondents, i.e. Mwita Rubirya and I Mwita Makori, attended the meeting as members of

the Baraza. In course of the meeting the Baraza found that the appellant was actually A a party to the theft of the machine. The Baraza resolved that the appellant should make compensation in the sum of Shs. 60,000/=. He paid the amount of November 7, 1987, and it is quite likely that he did so after his cattle had been seized by Sungusungu to enforce the resolution of the Baraza. In January, 1988, the appellant instituted a suit in B the High Court at Mwanza against the respondents. The suit was one for damages for slander and assault, in respect of which he claimed a sum of Shs. 200,000/= and Shs. 100,000/=, respectively, and for a refund of the Shs. 60,000/= he had paid to the Village Government. On July 26, 1988, the High Court dismissed the suit with costs. C

In support of his claims the appellant told the High Court (Munyera, J.) that he had denied that he was involved in the theft of the machine; that false and malicious statements were spoken of him at the meeting of the Baraza by the respondents imputing D theft; that he was subjected to the thorough drubbing of 100 strokes; and that thereafter the respondents directed that he should pay the compensation. He called no witness. The respondents denied each and every allegation. They stated that the appellant had admitted before the meeting of the Baraza that he had taken part in the E theft of the machine when that charge was put to him by the third respondent, and that the payment of the compensation was made by him in the context of that admission.

The learned judge was not satisfied that the appellant was unlawfully compelled to pay the compensation. Otherwise, he said, the appellant had ample time between the day F of the

sitting of the Baraza on July 31, 1987, and the day he paid the compensation on November 7, 1987, to contest the payment before higher authorities, which he did not.

The judge found that there was in fact publication of defamatory allegations respecting G the appellant in the meeting of the Baraza. But the judge was of the opinion that those statements were privileged and sincere. This is what he stated in his judgment:

H It is the law that any publication imputing the commission of a criminal offence is a defamation actionable per se. In this case there was such publication and the plaintiff was branded a thief. But it was agreed as well that the village's grinding machine was stolen. The machine was owned communally and every villager had an interest in it, the eight I defendants inclusive. They were justified in trying to find the thief so the

A defamatory utterances against the plaintiff were made in a privileged occasion, they were not promoted by personal spite of any defendant. For that reason defamation is not proved.

In relation to the assault the judge also found that the appellant's evidence had come B short. He wondered how the appellant could not produce even a single witness from the village to support his case, if his allegations were really true. He found it hard to believe that the appellant would be able to walk from the meeting after he had received such a heavy thrashing. He adverted to the medical chit annexed to the plaint and observed C that the materials contained in that document did not tally with the thorough flogging described by the appellant.

So as we have said earlier the judge dismissed the suit in its entirety and awarded the costs to the respondents. Aggrieved by the decision, the appellant lodged this appeal D to us. We are surprised that it took the sub-registry almost three years to prepare the High Court proceedings. The appellant is represented by Mr. Rugarabamu, while the respondents appear in person.

We have heard and followed the arguments of both sides. With regard to the slander, E we are unable to fault the trial judge's finding that the slanderous statements were sincere and privileged to the extent that they were published to those people of Masurura who attended the Baraza meeting. Appellant's Counsel has pressed upon us the submission that there were people from another village, Lyamisanga, at that F meeting, which is true. But if it is probable that the appellant admitted that he had stolen the grinding machine, we think that the plea of justification was available to the respondents in that respect, and we are of the opinion that there was probably such admission.

With regard to the sound flogging and the forced compensation, the problem was that G it was only the word of the appellant against the words of the respondents, and we are disposed to share the misgivings expressed by the trial judge. Just why the appellant could not produce even one witness to support his allegations, is not easy to H understand. With respect to Mr. Rugarabamu, there was no misdirection on the standard of proof on the part of the judge. What we understand the judge to have held is that in the circumstances of this case the evidence of the appellant alone was not sufficiently proponderant to estabish the allegations. We are not, therefore, persuaded I by the argument that the judge

was wrong to hold that there was neither a flogging nor a forced compensation. A
We are clearly of the view, however, that the Baraza la Jadi a Sungusungu organ, went beyond its powers when it compelled the appellant to make the compensation. The powers vested in Sungusungu are limited. Under Section 3(1) of the Peoples B Militia Laws (Miscellaneous Amendments) Act 1989, they enjoy the same powers of arrest for breaches of any provision of written law and search as those enjoyed by police constables. Once they arrest a suspect their duty is to take him to the police for any action the police may deem proper to take. The sooner this is impressed upon C their minds the better for the administration of justice. It seems to us, therefore, that the money paid as compensation was refundable to the appellant.
It follows from what we have stated this appeal should be dismissed in all respects, save that the sum of Shs. 60,000/= is to be refunded to the appellant. It is ordered D accordingly. It is also ordered that the appellant shall pay to the respondents only 75% of the costs, here and below.
E Order accordingly.
1992 TLR p137

[zRPz]ZUBERI AUGUSTINO v ANICET MUGABE 1992 TLR 137 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Omar JJA, Ramadhani JJA, Mapigano Ag. JA

F
9 June, 1992
Flynote
Civil Practice and Procedure - Damages - Special damages must be specifically pleaded and proved. G
Civil Practice and Procedure - Proof of cost of repair - Vehicle engine blown off - Cost of repair pleaded but not proved - Amount pleaded far below cost of purchasing new engine - Whether amount pleaded awardable in the circumstances.
Civil Practice and Procedure - Devaluation of the Tanzanian shilling - Reasonable H award for devaluation.
-Headnote
The respondent entrusted his mini-bus to the appellant with the ultimate intention of selling it. While in possession of the respondent the engine of the bus was blown off. In a I suit filed by the respondent in the High Court the appellant was found at fault and the respondent
1992 TLR p138
RAMADHANI JJA, OMAR JJA, MAPIGANO Ag.JA
was awarded shs. 500,000/= as repair costs, shs. 500,000/= for non-use of the bus A and shs. 1,000,000/= to off-set the devaluation of the shilling.
On appeal the awards by the High Court were attacked.
Held: (i) It is trite law that special damages must be specifically pleaded and proved; B although pleaded cost of repair was not proved since the engine was blown off and because it is a

notorious fact that prices are rising in astronomic proportions and that the amount pleaded cannot even buy a reconditioned engine we allow the amount C pleaded;

(ii) we hold it as a fact needing no proof that the value of our shilling has been going down very fast; however, the rate of 200% is very high and that a 50% rate is reasonable in the circumstances.

Case Information

Appeal dismissed. D

Magongo, for the appellant.

[zJDz]Judgment

Ramadhani and Omar, JJ.A. and Mapigano, Ag. J.A.: The respondent, Anicet E Mugabe, sued two people: the appellant, Zuberi Augustino, and another person who was the second defendant, Daudi Missana, who was found not at fault and so did not have a reason to appeal.

The respondent owns a Toyota mini bus with registration number TZ 84061. He F wanted to sell it so he asked the appellant to look up for prospective buyers. The bus was entrusted to the appellant who drove it from Nyegezi to Amini Mungu Garage in Mwanza town where it was agreed that it would be kept. That was on 2/12/1988. Two days later, on 4/12/88, the respondent was told that the bus had broken down at G Kisesa. It was not denied that the engine of the bus was blown off and the respondent towed the vehicle to Mabula Garage where it is to date.

The High Court of Tanzania at Mwanza (Munyera, J.) found the appellant at fault and awarded the respondents Shs. 500,000/= he had prayed for as repair costs, another H Shs. 500,000/= for the non-use of the bus and Shs. 1,000,000/= to off set the devaluation of the shilling.

The appellant was represented by Mr. Magongo, learned advocate, and he had six grounds of appeal which in the course of hearing he abandoned all but two. In the first I ground the complaint is that special damages have been granted by the learned judge which

were not specifically proved and indeed the award for the non-use had not even been A specifically pleaded. Then the other ground is that the devaluation at the rate of 200% granted by the learned judge is manifestly excessive.

The respondent was not represented and in effect did not make any submissions in reply to the two grounds of appeal. B

It is trite law, and we need not cite any authority, that special damages must be specifically pleaded and proved. Cost of repair was pleaded but not proved. The respondent merely stated it to be Shs. 500,000/=. However, the learned trial judge was satisfied that the engine of the bus was completely blown off and is in fact beyond C repair. It is a notorious fact that prices are rising in astronomic proportions and that the amount pleaded cannot even buy a reconditioned engine. So though repair costs have not been specifically proved we allow the amount pleaded. Then as already said, non-use was not all pleaded. However, it was not disputed that the appellant was D using the bus for passenger trips between Mwanza town and Kisesa and the engine was damaged in that process. He definately got some advantage which he should not be left to benefit from his wrongful acts. We agree with Mr. Magongo that the respondent intended

to sell the bus. But that could not proclude him from putting it into use. E Besides, he wanted to sell the bus so as to realise money with which to buy a tractor which he believed would be more profitable. Those plans have yet to materialise. So it is our well considered opinion that the respondent is entitled to some relief and we would sustain the award of Shs. 500,000/= under the prayer of "any other relief this Court F may deem just and fit to grant". We so grant.

The award for devaluation has exercised our minds greatly. We hold it as a fact needing no proof that the value of our shilling has been going down very fast. However, we agree with Mr. Magongo that the rate of 200% is very high. We think a 50% rate is G reasonable in the circumstances of this case. Thus we allow shs. 250,000/= for the devaluation.

In the end result we grant a total of Shs. 1,250,000/= with an interest of 10% from the date the vehicle was damaged, that is 4/12/1988, to the date of payment. H

The appeal is dismissed except to the extent allowed above. The appellant is to pay 75% of the costs both here and below.

I Appeal dismissed.

1992 TLR p140

A

[zRPz]MASWEDA ADIGA v REPUBLIC 1992 TLR 140 (HC)

Court High Court of Tanzania - Mwanza

Judge Chipeta J

12 June 1992

Flynote

Criminal Practice and Procedure - Assessors - Compliance with Rule 3 of G.N. 2 of B 1988.

Criminal Practice and Procedure - Compensation - Order given against a person convicted of receiving part of stolen property.

Criminal law - Receiving stolen property - When offence established. C

-Headnote

The complainant had his 37 fishnets stolen. Two of them were found in the possession of the appellant who subsequently was charged with and convicted of the offence of receiving stolen property. He was sentenced accordingly and ordered to pay shs. 257,000/= to the complainant as compensation. After unsuccessfully appealing to the D District Court the appellant appealed to the High Court. A number of grounds were argued in the High Court. First, that the record in the Primary Court did not show that the magistrate consulted assessors before preparing the judgment as required by rule 3 E of G.N. No. 2 of 1988. Second, that the compensation order was improper.

Held: (i) Failure to show on record that Rule has been complied with would not necessarily be fatal if, on a careful perusal of the record, it is plain that there had been F consultation;

(ii) there was a substantial compliance by the trial court with Rule 3 of G.N. 2 of 1988;

(iii) in order to prove a charge under section 311(1) of the Penal code, it must be established that the accused received or retained the property in question, and that he G received or retained the same with guilty knowledge in the sense that he knew or had reason to believe that the same had been stolen or otherwise feloniously obtained or disposed of;

(iv) the compensation order was not justified. H

Case Information

Appeal allowed in part.

Rugarabamu, for the appellant;

Magoma, for the respondent. I

1992 TLR p141

[zJDz]Judgment

Chipeta, J.: In Kome Primary Court, the appellant, Maswena Adiga, was charged A with and convicted of the offence of receiving stolen property contrary to s. 311(1) of the Penal Code and was sentenced to pay a fine of Shs. 5,000/= or six months imprisonment in default. He was further ordered to pay Shs. 257,000/= to the complainant as compensation. He unsuccessfully appealed to the District Court of B Sengerema. This, then, is his second appeal.

The prosecution's evidence, as given by the complainant and his three witnesses, was to the following effect: at the material time the complainant had 37 fishnets and had three employees, namely, Filberti Mayaka, Ndalahwa Kipipi, and Juma Bugatu (all of C whom testified), who were trapping fish on behalf of the complainant. All the 37 fishnets had special identity marks written on the bouys, and ropes. The bouys were marked MAKI LTD and three dots - ... The ropes were marked with red and green colours, while the bouys were painted green. D

On 24/8/89, the three employees went fishing, and at about 9.00 a.m. they left the fishnets at the lakeshore. When they went to the spot next morning, they found all the fishnets missing. They looked for the missing nets for several months. It was not until on 19th May, 1990 that they found two of the 37 fishnets at Ntama village in possession E of the appellant. The two fishnets were produced at the trial as Exhibit 'A'. The appellant claimed that those two fishnets were his own property. The two fishnets were found to have identity marks of the complainant.

In his defence, the appellant simply said that the two fishnets seized by the F complainant and his employees were his own property. He said that his fishnets had letter 'M'. But when asked to examine the fishnets in court and point out letter 'M', there was no such letter 'M'. Besides, the appellant did not even attempt to say from where he obtained the two fishnets. G

On that evidence, the trial court found as a fact that the two fishnets were among the 37 fishnets of the complainant which had been stolen, and it is in fact, inferred that the appellant was a guilty receiver.

During the hearing of this appeal, Mr. Rugarabamu, learned counsel for the appellant, H had the following submissions to make. In the first place he submitted that the trial was illegal because the learned Primary Court Magistrate did not sum up the case to the assessors nor did he seek their opinions. In any case, he submitted, the record does not show that he consulted the assessors before I

1992 TLR p142

CHIPETA J
preparing the judgment as required by rule 3 of G.N.No.2 of 1988. A
Secondly, and in the alternative, Mr. Rugarabamu sumitted that the evidence of identification of the two nets was inconclusive in that the witnesses did not say what marks were on the nets. On this point, he relied on the case of Republic v Adam Iddi and Another [1976] LRT n.18 B
Thirdly, learned counsel submitted that the nets were not produced in court as exhibits, and so they could not make the gravamen of the trial. Here the learned counsel referred the court to the case of Dharamshi v Republic [1977] LRT n.52.
Fourthly, learned counsel submitted that it was not satisfactorily proved that 37 nets C were stolen and so the order of compensation was improper.
Finally, learned counsel submitted that since the appellant used servants to do the job, it has not been shown that the appellant knew that the nets were stolen property, and D so he cannot be held liable because there is no vicarious liability in criminal law.
Mr. Magoma, learned senior state attorney, submitted that the learned trial magistrate throughout involved the assessors up to the time of assessment of the sentence. So it is clear that he observed rule 3 of G.N. No.2 of 1988. That being so, the trial was not a E nullity.
On the question of identification of the two nets, Mr. Magoma submitted that evidence of identification was watertight as the four witnesses gave identical descriptions of the nets. On the question of the assenting members of the court, and the dissenting F members will give a brief statement specifying findings of fact and the law, his decision on the issue and the reasons for it. (See Rule 4(1) and (2) of the Rules.)
As was conceded by both learned counsel, the Rules do not specify how the consultation is to be done. In my view, this must necessarily be done in private, and I G think that it would be desirable if the record did show that Rule 3 has been complied with. However, I do not think that failure to show on the record that Rule 3 has been complied with would necessarily be fatal if, on a careful perusal of the record, it is plain that there had been consultation. To hold otherwise would be to cling to the letter and H thus miss the substance of the matter. As the Latin Maxi-M goes, Qui Haeret in Litera Haeret in cortice (He who clings to the letter clings to the dry and barren shell and misses the truth and substance of the matter).
In the present case, the trial court's record reveals that the trial magistrate involved the I assessors at every stage of the trial
1992 TLR p143
CHIPETA J
right up to the sentencing process and the order of compensation. Throughout, the A language of the court shows that there was a consensus among all members of the court. Even the judgment reveals that. In my considered view, therefore, there was a substantial compliance by the trial court of Rule 3 of G.N. No. 2 of 1988. To hold to the contrary would be to go contrary to the letter and spirit of the provisions of B s.37(2) of the Magistrate's Courts Act. 1984, which I need not reproduce here.
I now turn to the question of guilty knowledge. It is certainly the law that in order to prove a charge under s.311(1) of the Penal Code, it must be established that the accused received or

retained the property in question, and that he received or C retained the same with guilty knowledge in the sense that he knew or had reason to believe that the same had been stolen or otherwise feloniously obtained or disposed of. (See Republic v Adamu Iddi and Another (supra).) D

In the instant case, the appellant had insisted that the two nets were his own property, and this was in the face of everwhelming evidence of identification of the fishnets. Some of the identifying marks were so clear that no owner of the fishnets could possibly have mistaken them. A fortiori, some of the identifying marks had been interfered with on E some of the buoys. In those circumstances, I am of the view that the trial court's inference of guilty knowledge on the part of the appellant was fully justified. The appellant's conviction, therefore, was inevitable on the evidence on record.

Finally, I turn to the question of compensation. I am prepared to accept the F complainant's evidence that in all 37 fishnets were stolen. His evidence was that he bought the same from shops, and he gave their total value to be Shs. 257,000/=. Unhappily, he lead no further evidence as to how he arrived at that figure. He did not even say how old they were. Be that as it may the crucial question is whether the G order of compensation was justified. In my view, it was not. The charge against the appellant was receiving stolen property and not theft. What was proved was that he received two fishnets if the charge preferred and proved had been that of stealing. The order of compensation in this case amounted to speculation to the effect that the H appellant had received all the 37 stolen fishnets, which is absurd.

In the final analysis, this appeal fails as against the conviction and sentence. However, the order of compensation is hereby set aside. I

1992 TLR p144

To the extent indicated herein, this appeal succeeds, but it is otherwise dismissed. A

B Appeal partly allowed.

1992 TLR p144

C

[zRPz]SELEMANI SEMBIKO v REPUBLIC 1992 TLR 144 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Makame JJA, Kisanga JJA, Omar JJA

17 June 1992

Flynote

Bills of Exchange - Negotiable instruments - Cheque - Payee gives assurance cheque D has been cleared and consequently delivers the goods bought - Later same payee informs cheque has not been cleared and seeks restoration of the goods - Whether goods can be restored - Whether there is failure of consideration.

-Headnote

The appellant wanted to buy a car from M/s Cooper Motors Corporation Ltd. Since E the seller insisted that payment must be in US dollars the appellant approached a third party who drew a cheque in favour of the corporation. The appellant undertook to reimburse the drawer in local currency. Upon the appellant presenting the cheque to F the corporation it was made clear to him that the motor vehicle would be realised to him only after the cheque was cleared and the proceeds thereof received by the Land Rover Factory in England. After about a month the corporation informed the appellant orally G and later by a letter that the cheque had been cleared. The appellant reimbursed the drawer of the cheque. The Corporation delivered the motor car to the appellant.

Later the Corporation claimed that the cheque had not been cleared. Such revelation was followed by criminal proceedings which ended up with acquittal of the appellant H and others and an order that the motor vehicle be restored to the Corporation. This appeal was against the restoration order.

Held: (i) Once the Corporation had repeatedly assured the appellant that all was all I right and that it had duly received the proceeds of the cheque; it seems plain to us that the corporation cannot validly

1992 TLR p145

be heard to come back to the appellant and allege that it has not received A consideration for the motor vehicle, contrary to its own earlier assurances which were as clear and unambiguous as they could possibly be;

(ii) the restoration order was wrongly made in as much as it purported to benefit the corporation which was all along to blame. B

Case Information

Appeal allowed.

Mkatte, for the appellant

[zJDz]Judgment

Kisanga, Makame and Omar, JJ.A.: The appellant Selemani Sembiko and two C others were jointly charged in the District Court with obtaining a motor vehicle by false pretences from Messrs Cooper Motors Corporation Limited, hereinafter to be referred to simply as the Corporation. The three of them were also charged jointly on a related D count of making a false document, and the appellant alone was charged on yet a further related count of uttering a false document. After a full trial they were all acquitted on all the counts with an order, however, that the motor vehicle in question be restored to the Corporation. The appellant's appeal to the High Court against the said order was E unsuccessful, hence this second appeal.

The background to the case was briefly as follows: The appellant is a managing director of a firm known as Steadfast Tanzania Limited duly registered and operating in Tanzania. Some time in 1988 he approached the Corporation for the purchase of a F new Land Rover for his firm. He was given a quotation of US$ 33,145.00 for it, and it would appeal that the Corporation insisted on the payment being effected in foreign currency. Whereupon the appellant approached one Damas Nilah, a business G associate and co-accused at the trial, for help. This latter in turn approached a European friend of his called Danied Snadon who was operating a company called

East African Sailing Safari duly registered with the Registrar of Business names with its place of business at the Yatch Club in Dar es Salaam. Between these three, an agreement was H reached whereby the owner of the East African Sailing Safari issued a cheque in foreign currency for the purchase of the motor vehicle and the appellant undertook to re-imburse him in local currency while Damas Nilah guaranteed the re-imbursement.

Upon the appellant presenting the cheque to the Corporation, it was made clear to him I that the motor vehicle would be released

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KISANGA JJA, MAKAME JJA, OMAR JJA

to him only after the cheque was cleared and the proceeds thereof received by the A Land Rover Factory in England. After about one month the appellant was called by the Corporation to be informed that a telex message was received from the Land Rover Factory England stating that the money on the cheque was duly received, and that the Corporation could now proceed to process delivery of the motor vehicle to the B purchaser. This was yet followed by a letter by the Corporation by which the appellant was further assured that the cheques had been honoured and payment of it had been duly effected. In reliance of these assurances the appellant proceeded to re-imburse C the drawer of the cheque to the tune of Tsh. 4,000,000.00 being the equivalent in foreign currency of the purchase price of the motor vehicle. In the meantime the Corporation duly processed delivery of the motor vehicle in favour of the appellant's firm, the Steadfast Tanzania Limited.

Some time after delivering the motor vehicle, however, the Corporation claimed that D the Land Rover Factory in England sent information that the very cheque which earlier on was said to have been cleared and the proceeds thereof received in England had been dishonoured by an Australian bank with which the drawer once operated an account but had since closed it. Such revelation was followed by criminal proceedings E which, as stated before, ended up with the acquittal of the accused persons and the order now under review.

The basis for the concurrent decisions of both courts below to restore the motor F vehicle to the Corporation was that the Corporation had received no consideration for the motor vehicle, and that the appellant's remedy, if any, was to sue the East African Sailing Safari. Mr. Mkatte, learned advocate who represented the appellant both in this Court and in the High Court, however, submitted in effect that the Corporation was at G all material times the holder of the cheque in due course for value, and that as such it was the Corporation, not the appellant, which was to seek relief by suing the drawer of the cheque.

This matter is not free from difficulty. Admittedly the argument of both courts below H that the Corporation had received no consideration for the motor vehicle would have much force if there was nothing more to it. But that argument obviously overlooked or played down some important consideration, namely, that it was the Corporation itself which was the author of its own misfortune. The Corporation had made it clear to the I appellant that the motor vehicle would not be released until the foreign cheque

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KISANGA JJA, MAKAME JJA, OMAR JJA

was cleared and the proceeds thereof were received by the LandRover Factory in A England. The appellant was agreeable to that and waited patiently for about one month after which the Corporation gave him repeated assurances that all was well, that the cheque had been honoured and that payment of it had been effected. It was on the strength of such repeated assurances that the motor vehicle was released or delivered B to him. In other words the Corporation had assured him that it had duly received consideration for its motor vehicle, otherwise it would certainly not have parted with it.

The appellant for his part, acting on the Corporation's repeated assurances, went ahead and re-imbursed the drawer of the foreign cheque in local currency in the amount C equivalent to what the Corporation made him believe that it had duly received as the price of the motor vehicle. That was clearly consideration for the motor vehicle on the part of the appellant. Then the question is: In these circumstances what further was required of the appellant to make his claim over the motor vehicle a valid one? Surely D once he was assured that the cheque was valid and had been duly honoured, it would be idle to expect him to turn to the drawer of the cheque for any questions regarding the cheque.

Once the Corporation had repeatedly assured the appellant that all was all right and E that it had duly received the proceeds of the cheque, it seems plain to us that the Corporation cannot validly be heard to come back to the appellant and allege that it has not received consideration for the motor vehicle, contrary to its own earlier assurances which were as clear and unambiguous as they could possibly be. Had the Corporation F not given those assurances, the transaction would not have been concluded. If as now claimed by the Corporation the drawer of the cheque had closed his account, the Corporation which was having the cheque ought to have brought this to the notice of the appellant who would then take up the matter with the drawer of the cheque in order G to prevent anyone being defrauded. But the Corporation was negligent. It did not care to establish or ascertain the true status of the cheque, i.e. whether it was drawn on an account that had since been closed,even though the Corporation had up to about one month to do this. Not only that. The Corporation went on to feed the appellant with H wrong information about the status of the cheque saying that it was valid and had duly been honoured, thereby inducing the appellant to part with his Tshs. 4,000,000.00 believing that he was reimbursing the drawer of the cheque for foreign currency in respect of the purchase price for the motor vehicle. All along it was the Corporation, I not

the appellant, which was to blame; in our view the Corporation must bear the A consequences that flow from there.

We are firmly of the view that the restoration order was wrongly made in as much as it purported to benefit the Corporation which was all along to blame. If the Corporation received no consideration for its motor vehicle from the appellant, this was because of B the Corporation's own misleading assurances that it had duly received such consideration. Had it not given such misleading assurances, appropriate steps would have been taken to ensure that the Corporation duly received consideration for its motor vehicle. On the other hand the appellant, acting on the Corporation misleading C assurance or information gave consideration for the

motor vehicle by reimbursing the drawer of the cheque for the foreign currency which the Corporation made him believe that it had received from the said cheque as being the price of the motor vehicle. In D our view, the appellant had done all that was required of him to make his firm's claim over the motor vehicle valid.
In the result the appeal succeeds. We accordingly reverse the order in question, and direct that the motor vehicle in question shall remain in the name of the registered owner, The Steadfast Tanzania Limited. E
Appeal allowed.
1992 TLR p148
F
[zRPz]MATHEI FIDOLINE HAULE v REPUBLIC 1992 TLR 148 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Makame JJA, Kisanga JJA, Omar JJA

G
17 June, 1992
Flynote
Evidence - Confession - Cautioned statement of a person who is alive and available H admitted under section 34 Evidence Act - Whether proper.
Evidence - Confession - Murder - Admission by appellant that he had assaulted his I mother - Whether confession of murder.
1992 TLR p149
-Headnote
The appellant assaulted his mother whom he believed to be a witch. In convicting the A appellant the trial judge relied on two pieces of evidence. The first was a statement the appellant made to his village chairperson that he had assaulted his mother. The second was a cautioned statement alleged to have been made by the appellant before a police officer who at the time of the trial was reported dead. The trial judge treated both B pieces of evidence as confession.
Held: (i) The mere admission by the appellant that he had assaulted his mother could not really be taken to amount to a confession to the offence of murder with all its essential ingredients, especially as at the time the appellant was making the admission C the victim was still alive and receiving treatment at the hospital;
(ii) section 34 of the Evidence Act was inapplicable to the facts and circumstances of this case, and consequently the learned trial judge wrongly admitted the alleged cautioned statement of the appellant in evidence. D
Case Information
Appeal allowed as limited.
Mbuya, for the appellant E
Senguji, for the respondent
[zJDz]Judgment

Kisanga, Makame and Omar, JJ.A.: The appellant was charged with and convicted of murder contrary to section 196 of the Penal Code and sentenced to death by the High Court (Kazimoto, J.) sitting at Songea. He is now appealing against both F conviction and sentence.

Briefly, the facts of the case were as follows: The appellant is the son of the deceased woman. The two had been in some misunderstanding apparently arising from the appellant's belief that the deceased had, by witchcraft, caused the disappearance and G subsequent death of his child. The case for the prosecution was that acting on such suspicions the appellant set out to the home of the deceased on the material night and, on finding her, struck her with a stick on the head. Later the deceased died in hospital H following the head injury thus inflicted.

In his defence at the trial the appellant, denied assaulting the deceased and put up an alibi.

In convicting the appellant, the trial judge relied on two pieces of evidence: One is that which he treated as a confession made by the appellant to his village chairman or I chairperson

Cotride Msangu

1992 TLR p150

KISANGA JJA, MAKAME JJA, OMAR JJA

(P.W.1). The other pieces is a cautioned statement alleged to have been made by the A appellant to a police officer who at the time of the trial was reported dead, and in which the trial judge also took the view that the appellant had confessed to the offence charged.

Mr. Mbuya learned advocate who argued the appeal before us submitted that the B alleged cautioned statement of the appellant was wrongly admitted in evidence. Indeed the defence had objected to its admissibility at the trial, but the objection was overruled and the court proceeded to admit it under section 34 of the Evidence Act which may be invoked where it is sought to put in evidence the statement of a witness who died before he could testify orally. But the cautioned statement in this case is attributable to the C appellant who is both alive and available. It is not a cautioned statement of the police officer who allegedly recorded it from the appellant and who is now reported dead. As such, Mr. Mbuya contended, the provisions of section 34 of the Evidence Act could D not be prayed in aid here.

Mr. Senguji, learned State Attorney for the respondent Republic at first took the view that the cautioned statement was rightly admitted in evidence, but upon reflection he conceded that it was not. We are in entire agreement with counsel for both sides. We E are satisfied that for the reasons set out hereinbefore section 34 of the Evidence Act was inapplicable to the facts and circumstances of this case, and consequently the learned trial judge wrongly admitted the alleged cautioned statement of the appellant in evidence. F

That leaves the alleged confession to P.W.1 as the only evidence implicating the appellant with the offence charged. P.W.1 testified that she was the village chairman or chairperson of her village. At about 10 O'Clock in the night the appellant called on her and stated that he had a big problem, namely, that he had assaulted his mother and G that he was now asking P.W.1 to go to the victim and plead for forgiveness for him. Whereupon P.W.1 advised the appellant to remain at her house for the night, as it was already late, and promised to take up the matter the following morning. On the H following morning she handed over the appellant to the police for appropriate action.

As stated before, the appellant in his defence at the trial vehemently denied assaulting his mother and equally denied to have told P.W.1 what he is alleged to have said to her. However, the trial court believed P.W.1 and rejected the appellant's denial and we I
1992 TLR p151
KISANGA JJA, MAKAME JJA, OMAR JJA
could find no fault with that. The assault on the deceased was clearly unlawful. A
The question which arises is whether what the appellant said to P.W.1 amounted to a confession to the offence of murder. A confession within the context of criminal law is one which admits in terms the offence charged. It is one which admits all the essential B elements or ingredients of the offence. An admission of one or only some of the ingredients of the offence is not sufficient. In the instant case all that the appellant said to P.W.1 was that he had assaulted his mother. Admittedly assault, or to be more precise, an unlawful assault is an essential ingredient of the offence of murder with which the C appellant was charged. But it is by no means the only one. There are other essential ingredients such as the intention on the part of the prisoner to kill or cause grievous bodily harm, and the fact that the victim in question is in fact dead. Thus the mere admission by the appellant that he had assaulted his mother could not really be taken D to amount to a confession to the offence of murder with all its essential ingredients, especially as at the time the appellant was making the admission the victim was still alive and receiving treatment at the hospital.
On the other had it is plain from the evidence that following the appellant's assault on E the deceased the deceased was taken to hospital for treatment where she died about six days later, and there is no evidence of any intervening act of assault by anyone else. The post-mortem examination report shows that the deceased had sustained a compressed fructure of the skull which caused brain injury and intracranial bleeding leading to the F death. The only conclusion to be drawn is that the deceased died from injuries following the assault, inflicted on her by the appellant.
But we could find no clear evidence of malice aforethought on the part of the appellant. It is not clear what intention the appellant had when he assaulted the deceased. It is G not clear whether he wanted to kill her or cause her grievous bodily harm or whether he simply wanted to punish her out of anger for thinking that she was the cause of his child's disappearance and its subsequent death. Nor is there any evidence as to what weapon, if any was used in assaulting the deceased, nor the extent of the depressed H fructure of the skull. In the circumstances we feel inclined to give the benefit of doubt to the appellant. Consequently we find the charge of murder not proved beyond reasonable doubt. However for the reasons already stated we find the appellant guilty of the lesser offence of manslaughter and convict him accordingly. I
1992 TLR p152
As regards sentence, we must state at once that this was a bad case of manslaughter A bordering on murder itself. This fact must be reflected in the punishment to be awarded. The appellant is accordingly sentenced to ten (10) years' imprisonment. The appellant's appeal is therefore allowed to this limited extent.
B Appeal allowed in part.

1992 TLR p152

C

[zRPz]D.T. DOBIE & COMPANY (TANZANIA) LTD. v N.B. MWATEBELE 1992 TLR 152 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Kisanga JJA, Ramadhani JJA, Mnzavas JJA

D

19 June 1992

Flynote

Court of Appeal Rules - Limitation for filing appeals - When does time start to run - At the E time of receiving proceedings or when certificate of assurance of completeness of record of proceedings is given

-Headnote

After being dissatisfied by the decision of the High Court, the advocate for the F appellant indicated his intention to appeal and received the record of the appeal on 11.11.91. He thought however that the record was incomplete and wrote to the registrar requesting to be supplied with the missing part(s). The registrar wrote back on 13.12.91 saying that the record was complete and, on request, he issued a certificate under rule 83(1) of the Court of Appeal Rules to that effect. The appellant's advocate G filed his appeal on 17.1.92. At the hearing of the appeal the advocate for the respondent filed a notice of motion raising a preliminary objection that the appeal was time barred claiming that the 60 days time limit, counted from 11.11.91, ended on 12/1/92. H

Held: (i) Where there are no grounds for thinking that a certificate of assurance of completeness of record of proceedings is incorrect or improper court would not interfere with it;

I (ii) Where a party, on reasonable grounds, writes to the registrar asking for missing part(s) of the proceedings, the limitation

1992 TLR p153

KISANGA JJA, RAMADHANI JJA, MNZAVAS JJA

period does not begin to run against such a party until he receives either the part of A proceedings asked for or an assurance that the proceedings sent to him were complete.

Case Information

The preliminary objection fails.

Uzanda, for the Appellant B

Raithatha, for the Respondent

[zJDz]Judgment

Kisanga, Ramadhani and Mnzavas, JJ.A.: When this appeal was due hearing, Mr. M. Raithatha, learned counsel for the respondent, filed a notice of motion raising a C preliminary objection that the appeal is time barred.

The background to the matter is quite short. Mr. Uzanda, learned advocate for the appellant, had written to the Registrar, High Court, for the supply of a typed copy of D proceedings for the

purposes of preparing the record of appeal in this case, and the same was duly supplied on 11.11.91. He noticed, however that the record was incomplete and therefore he addressed another letter to the Registrar requesting to be supplied with the missing part or parts. The Registrar wrote back on 13.12.91 saying E that what he had supplied was the complete set and that there was no part missing. This was followed by requests to the Registrar for a certificate under rule 83(1) of the Court of Appeal Rules which certificate was eventually supplied to the learned counsel on 8.1.92. The relevant part of the certificate reads: F

This is to certify that a period from 3rd January, 1991 when M/S. Donaldson and Wood and Co. Advocates for the Appellant applied for copies of certified proceedings to 13th December, 1991 when the same were supplied to the Appellant's Advocate is to be G excluded as such days were required for the preparation and delivery of the proceedings to the said Advocate.

Relying on this certificate, Mr. Uzanda filed the appeal on 17.1.92. H

Mr. Raithatha's contention as we understand it is to the effect that the Registrar's certificate is misleading because it talks of supplying a copy of proceedings to counsel for the appellant on 13.12.91 when in fact those proceedings were supplied on 11.11.91. Emphasizing that no proceedings were in fact supplied on 13.12.91, I

he contended that the limitation period ought to run from 11.11.91 when the A proceedings were in fact supplied and not from 13.12.91 as the Registrar's certificate purports to say, because no proceedings were supplied on that day. Thus, Mr. Raithatha went on, the appellant ought to have filed the appeal within 60 days of his receipt of the copy of proceedings on 11.11.91, which gave him up to 12.1.92. The B appellant, however filed the appeal only on 17.1.92, which made him out of time by 5 days.

Resisting the objection, Mr. Uzanda argued that the appeal was in time because it was within the time limit set out in the Registrar's certificate. He submitted further that the C Registrar was empowered by the Court of Appeal Rules to issue the certificate and that it was not competent to question or go behind such certificate.

We have to point out at once that the Registrar's certificate is not, and cannot be, beyond question. It is true that the Registrar has power to issue the certificate under D the proviso to rule 83(1) of the Court of Appeal Rules. But we are quite clear in our minds that if there are gounds for thinking that the certificate is incorrect or otherwise improper, that would justify interfering with it. However, we are satisfied that there are E no ground for interfering with the certificate in this case.

As stated earlier, when Mr. Uzanda received the copy of proceedings on 11.11.91 and noticed that some part was missing, he wrote to the Registrar to request for the missing part, but the Registrar replied on 13.12.91 saying that what he had supplied was the F complete set, and that there was no part missing. A glance through the record of appeal confirms Mr. Uzanda's claim that the proceedings sent to him were incomplete even though the Registrar's assurance is to the contrary. For example, Mr. Uzanda had asked to be supplied with the first part of the

proceedings which, both counsel who G also represented the parties at the trial are agreed, related to the giving of the ex-parte judgment, but that part of the proceedings is not reflected on the record of appeal. Mr. Raithatha argued that in any case the ex-parte judgment was not essential for the preparation of the record of appeal. For, the ex-parte judgment was set aside, and H the suit proceeded to hearing leading to this judgment now being appealed against. So that, counsel argued, the non-inclusion of it in the proceedings by the Registrar could not constitute a valid ground for Mr. Uzanda writing to request for the supply of it and I thereby prevent the limitation period from starting to run against him.

1992 TLR p155

KISANGA JJA, RAMADHANI JJA, MNZAVAS JJA

We have carefully considered this submission but we could not acceed to it. Mr. A Uzanda had the conduct of the case. As such he was entitled to require to be supplied with the material which he considered necessary for the preparation of the record of appeal. Perhaps one can say with some justification that the ex-parte judgment was not necessary for the preparation of the record of appeal after one has studied the B proceedings closely and after deciding what grounds of appeal one was going to raise. But it is less certain whether one could do so only after the initial perusal of the proceedings. Mr. Uzanda wrote to request for the missing part of the proceedings on 13.11.91, that is, only about a day or two after receiving the set of proceedings. It is C obvious that he wrote the request only after the initial and quick perusal of the proceedings. It could be doubted whether at that stage he could say with certainty that the ex-parte judgment would not be necessary for the preparation on the record of appeal. In this respect it is pertinent to note Mr. Uzanda's remarks at the hearing of D this objection that even after receiving the Registrar's reply that the set of proceedings sent to him was complete, when in fact it was not, he was still of the view that he needed the missing part but thought that it was pointless to persist on his request because it was then evident that it would yield no results. Consequently he decided not to write E further on that aspect of the matter and instead proceeded to prepare the record on the incomplete set of proceedings.

We are therefore satisfied that Mr. Uzanda had reason to write to the Registrar to ask for the missing part of the proceedings, and the question now is: What effect, if any, F did this have on the limitation period? Mr. Raithatha takes the view that since the Registrar replied saying that the set of proceedings sent was complete, then the period of limitation started to run as from 11.11.91 i.e. the very day the said proceedings were sent. For, counsel went on, the Registrar did not send anything on 13.12.91 when he G wrote to say that the set of proceedings was complete. In this connection Mr. Raithatha pointed at the Registrar's certificate as being erroneous for citing 13.12.91 as the day when the proceedings were supplied to counsel for the appellant because, he stressed, H nothing was sent on that day. Although this argument has some force, we are of the view that it cannot succeed. We think that where, as in this case, a party on reasonable grounds writes to the Registrar asking for missing part or parts of the proceedings, the period of limitation does not begin to run against such party until he receives either the I part of proceedings asked for or an assurances that the proceedings

1992 TLR p156

KISANGA JJA, RAMADHANI JJA, MNZAVAS JJA

sent to him were complete and there is nothing further to be supplied. The question A whether the missing part was necessary for the preparation of the record of appeal is no doubt relevant but the decision of the Court on that issue must depend on the facts and circumstances of each case.

As has been shown, Mr. Uzanda in this case did not receive the missing part of the B proceedings which he had asked for. Rather he received the assurance, which was obviously erroneous, that the set of proceedings sent to him was complete and that there was nothing further to be communicated to him. That assurance was sent to him on 13.12.91. In our view that was the date on which the period of limitation began to run C against him. Under rule 83(1) of the Court of Appeal Rules he was required to lodge the appeal within 60 days from that date. He was well within that period when he did lodge the appeal on 17.1.92.

Admittedly the Registrar's certificate is misleading for referring to 13.12.91 as the D date on which the copy of proceedings was sent to the appellants advocate. For, as Mr. Raithatha rightly pointed out, no proceedings were sent on that day. We think, however, that this was a mere slip of the pen, and that the Registrar must have meant to refer to that date as being the date on which he informed the appellant's counsel that the set of E proceedings sent to him earlier on was complete. At any rate, we are quite satisfied that the error was harmless and did not affect the validity of the certificate, and that Mr. Uzanda was perfectly entitled to rely on it, as he did, in lodging the appeal. F

In the result the preliminary objection fails and it is accordingly dismissed with costs.

G Appeal dismissed.

1992 TLR p157

A

[zRPz]THOMAS MJENGI v REPUBLIC 1992 TLR 157 (HC)

Court High Court of Tanzania - Domoma

Judge Mwalusanya J

23 June, 1992

Flynote

Legal Representation - Legal Aid - Denial of right to legal aid paid for by the state - Right B to be informed of the right to legal representation by the trial court.

Criminal Practice and Procedure - Sentencing - Power of subordinate courts in sentencing - Mandatory minimum sentence of 30 years imprisonment unconstitutional - Corporal C punishment unconstitutional - The disproportionate test.

Constitutional Law - Derogation clause - Interpretation and applicability.

Criminal Law - Armed Robbery - An offence under section 285 and 286 of the Penal Code. D

-Headnote

In an appeal against conviction and sentence the judge found that the subordinate trial court erred in not informing the appellants of their right to free legal aid paid for by the state and that the subordinate trial court had no power to sentence the appellants to a E term of imprisonment of a period exceeding eight years. The judge also found that the mandatory minimum sentence of 30 years imprisonment and corporal punishment were unconstitutional and were not saved by the derogation clause in the constitution. The judge also found that the offence of armed robbery exists in the Penal Code. F

Held: (i) The trial is a nullity because the appellants who are indigent were denied of their statutory and constitutional right to legal representation paid for by the state; G

(ii) the trial was also a nullity because the appellants were not informed of their right to have legal representation;

(iii) as regards sentence, the final magistrate had no power to pass a sentence of over eight years imprisonment;

H (iv) the mandatory minimum sentence of 30 years imprisonment under the minimum sentences Act No. 1 of 1972 as amended by Act No. 10 of 1989 is unconstitutional and void because it is an inhuman and degrading punishment;

(v) the mandatory minimum sentence of 122 strokes of corporal punishment is unconstitutional and void as it is an inhuman I

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and degrading punishment prohibited by article 13(b)(e) of the Constitution. The A proper test whether a punishment is inhuman and degrading is the disproportionate test;

(vi) a derogation clause should not be interpreted as entitling the government to impose vague or arbitrary limitations on basic human rights; but that limitation should B be reasonable and only be invoked when there exists adequate safeguards and effective remedies against abuse;

(vii) armed robbery is provided for in sections 285 and 286 of the Penal Code. It is committed where the offender is armed with any dangerous or offensive weapon or instrument. C

[zJDz]Judgment

Mwalusanya, J.:

I. Introduction D

The two appellants Thomas s/o Mjengi and Ramadhani s/o Mussa whose appeals have been consolidated were charged and convicted of robbery with violence c/s 285 and 286 of the Penal Code Cap. 16. They were each sentenced to the prescribed minimum sentence of 30 years imprisonment and ten(sic) strokes of corporal punishment. They E are now appealing against conviction and sentence. Under s.3 of the Legal Aid (Criminal Proceedings) Act No. 21/1969 I granted legal aid to the two appellants so that an advocate paid for by the government could argue their appeals. One Mr. F Mbezi was assigned to prosecute the appeal on behalf of the appellants.

Counsel for the appellants Mr. Mbezi in his amended memorandum of appeal, raised three matters of constitutional importance and which are of public interests. The matters involve the

interpretation of our Constitution with regard to the basic freedoms and G rights. The Senior State Attorney, Dodoma who is the representative of the Attorney General was duly served with the amended memorandum of appeal and was quite aware of the constitutional matters raised - and so s. 17A(2) of the cap. 360 as amended by Act No. 27/1991 was duly complied with. H

The three constitutional matters raised are:

First that the trial was a nullity because the indigent appellants were denied their right to free legal aid payable by the state nor were they informed of their right to engage counsel at their own expense; secondly that the mandatory Minimum Sentence of 30 I years imprisonment is an inhuman and degrading punishment and so

unconstitutional; Thirdly that corporal punishment is an inhuman and degrading A punishment and so unconstitutional. Besides those three constitutional matters, counsel Mr. Mbezi has also stated that the conviction was against the weight of evidence; and that the appellants were convicted of armed robbery an offence which is non-existence in the Penal Code and in any case they were convicted with an offence they had not B been charged with.

II. The Right to Legal Representation

On this point counsel for the appellants Mr. Mbezi based his argument on my recent C decision in the case of Khamisi Hamis Manywele v R. Dodoma H.C. Crim. Appeal No. 39/1990 (unreported), which I understand has gone to the Tanzania Court of Appeal, on appeal by the D.P.P. Therefore I will not spend much time discussing the genesis of the right to legal representation, as most of the points canvassed were D thoroughly documented in the Manywele case (supra).

Suffice here to briefly state what that right is all about. The right to legal representation stands on two legs: The constitutional right and the statutory right. E

The constitutional right to legal representation stands on two legs - first under Art. 13(6)(a) of our Constitution which provides for the right to be heard. There are three persuasive authorities which interpret the phrase 'fair hearing' in their Constitutions to include the right to legal representation paid for by the State for an indigent person F whose constitutional rights are at stake. First we have the case of Powell v Alabama (1932) 287 U.S. 45 decided by the U.S.A. Supreme Court. Then from Zimbabwe the Supreme Court there in the case of Dube & another v The State: Supreme Court Judgment No.2 12/1988. That case is defended by Hon. Mr. Justice A.R. Gubbay of G the Zimbabwe Supreme Court in his paper of 'Third Commonwealth Africa Judician Conference' in Lusaka, Zambia April 1990, Titled 'Judicial Review in the enjoyment of Human Rights' published in the Commonwealth Law Bulletin Vol. 16 No.3 of July 1990 from pp. 992 - 1001. The third persuasive authority is the decision of the H Supreme Court of the Republic of Ireland in the case of The State (Healy) v Donoghue (1976) IR.325. That decision is defended by the Hon. Mr. Justice John Kenny of the Supreme Court of the Republic of Ireland in his article 'A Bill of Rights' published in the Northern Ireland Legal Quarterly (1979) Vol.10 No.3 at p. 195. I

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The second leg on which the constitutional right rests is on the right to personal A freedom under Art. (15(2) of our Constitution. That Article stipulates that no one shall be deprived of his personal liberty except by procedure established by law. In India in the case of Maneka Gandhi v Union of India (1978) 2 S.C.R. 248, interpreting a B similar provision, it was held by the Supreme Court there, that no procedure can be regarded as reasonable, fair and just which does not afford legal representation to an accused person who is placed in jeopardy of his life or personal liberty in a criminal proceedings. The above decision was in principle adopted by the Tanzania Court of C Appeal in the case, of D.P.P. v Daudi Pete: Crim. Appeal No. 28/1990 (unreported). The right to legal representation for the poor, includes the right to be informed of that right by the trial court, so decided the supreme Court of India in the Maneka Gandhi case (supra). The Hon. Mr. Justice Bhagwati, the former C.J. of India defends the D above case, in his article 'Human Rights as evolved by the jurisprudence of the Supreme Court of India published in the Commonwealth Law Bulletin Vol. 13 No. 1 of January 1987 at pp.230 - 245.

In fact the right to legal representation for the poor is recognized all over the world. It E is contained in the Universal Declaration of Human Rights (1948), the International Covenant on Civil and Political Rights (1976), Art. 7(1) of the African Charter of Human and People's Rights (1981), and Art. 6(3) (1) of the European Convention on Human Rights (1950). Therefore the right to legal representation is accepted by the F community of nations as a birthright for every human being.

That is why I hold that the Statutory right to legal representation is contained in s. 310 of the C.P.A. No. 9/1985 as interpreted in the light of international human rights stands and norms as above adumburated. In short s. 310 of the C.P.A. should be interpreted to G mean that those who can afford to pay have a right to legal representation; and those who cannot afford to pay (i.e. who are poor) have an equal right to free legal aid paid for by the state, as provided in the Legal Aid (Criminal Proceedings) Act No. 21/1969. H that right includes the right to be informed of that right by the trial court. Perhaps it important to emphasize that, the above construction of s.310 of the C.P.A. is inevitable in the light of international human rights standards and norms. As Mr. Justice A.R. Gubbay of Zimbabwe Supreme Court states at p. 999 (in his article cited above): I

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A In giving meaning to legislation on human rights expressed in general or even vague terms, where uncertain or incomplete, there is ample scope for a Judge to look to international developments and drawn upon them in seeking a solution. International human rights instruments and precedents ..... provide invaluable information and guidance. A judicial decision has greater legitimacy and will command more respect if it B accords with international norms that have been accepted by many countries, than if it is based upon the parochial experience or foibles of a particular Judge or Court.

That is one way of reaching at the conclusion that there exists a statutory right to legal C representation for the poor i.e. by way of seeking guidance from international human rights instruments.

The other way of establishing the statutory right to legal representation is the generous and purposive construction of S.310 of the C.P.A interpreted in the light of Act No. D 21/1969. Those provisions were enacted to inculcate in our heads that justice should not only be done, but should be seen to be done. It will be recalled that before the 1969 legislation, the right to legal representation for poor accused persons was restricted to capital offences (murder, treason and manslaughter). However after the 1969 Act, E the right to legal representation for poor accused persons was extended to cover non-capital offences like theft, causing grievous harm, robbery e.t.c. which are triable by the District Courts and R.M.'s Courts.

Counsel for the appellants Mr. Mbezi has exclaimed at the existing anomaly. He said F for offences like incest or written threats to murder, punishable with a maximum of not more 5 years and 7 years imprisonment respectively, the offenders are provided free legal aid by the State simply because the offences are triable by the High Court. However offenders charged with offences like armed robbery, punishable with a G minimum of 30 years imprisonment, are not provided with free legal aid, simply because the offender is charged in a subordinate court. That is unfortunate. It is submitted that the correct interpretation of the decision of the Tanzania Court of Appeal in the case of Laurent s/o Joseph v R. [1981] T.L.R. 351, is that in either case whether the H offence is trible by the High Court or subordinate court, the trial is a nullity if the indigent accused person was not provided with counsel, at least for all serious offences.

That a certifying authority under s.3 of the Legal Aid (Crim. Proceedings) Act No. I 21/1969 has a discretion to refuse or grant

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legal aid to a poor accused person, is a myth. The E.A.C.A. in the case of Mohamed A s/o Salim v R: [1958] E.A. 202 which originated from Tanganyika, said at p. 203:

> That in such a case (the certifying authority) should give the matter anxious consideration before deciding to refuse a certificate for legal aid on the ground of sufficiency of means; B that a reasonably liberal interpretation ought to be placed on the section and that in case of doubt the discretion should be exercised in the prisoners' favour.

I wish only to point out that s.3 of the Poor Prisons Defence Ordinance Cap.21 which C the above case was interpreting is in pari materia with our s. 3 of Act No. 21/1969. In fact Prof. James Read in his tours de force article 'The Advantage of Counsel' in the 'East African Law Journal' Vol. VIII NO. 4 (1971) concludes at p.294 that the certifying authority has no option but to grant legal aid if the accused is poor. He says: D

> Although the decision in the Gales Hired v The King: [1944] A.C. 149 turned in part upon the mandatory nature of the legislative provision for legal aid in Somaliland, it has been E regarded as establishing a general principle - see for example, the remarks of E.A.C.A. in Samson v R. [1958] E.A.681 at p. 682 at p. 683 where they said: 'We do not think that anything turns

upon the fact that appellants were entitled as of right to have an advocate assigned'. See also the judgment of Bennet J. of High Court of Uganda in Yusufu s/o F Gita v R. [1958] E.A. 211 at p. 213: 'Every accused has the undoubted right to be defended by counsel.

It is astonishing to learn that since 1969 the members of the Judiciary and the Bar G have with a calculated conspiracy of silence, buried their heads in the sand like ostriches, pretending that they are unaware of the above authorities of the E.A.C.A. Without shame they have glorified the right of these who can afford to be defended by H counsel, while quite obvious to the similar right of poor persons tried by subordinate courts. Such an anomalous practice can be seen in such cases as: D.P.P. v Rugaimkamu [1982] TLR 139; Alimasi Kalumbeta v R: [1982] T.L.R. 329; Joshwa s/o Nkonoki v R. [1978] L.R.T. n. 24, Mugema v R: [1967] E.A. 676. The I poor accused persons triable by the subordinate courts and Economic Crimes Courts have been completely forgotten. The judiciary and

members of the Bar are in the dock for having left the poor accused persons in the A cold for far too long since 1969.

Counsel for the Republic Mr. Kifunda was candid enough to concede that a poor accused person has a statutory right to be provided with free legal aid and to be informed of that right by the trial court. He said that that right stems from the B purposeful construction of s.310 of the C.P.A. as read in the light of s. 3 of the Act No. 21/1969. He said for all serious offences triable by the subordinate courts, poor accused persons have the right to free legal aid paid for by the state. He conceded that the trial in this case was a nullity, and said that he would pray for a retrial. C

However Mr. Kifunda would not go as far as stating that a poor accused person has a constitutional right to free legal aid. He said that so long as an accused person has failed to perform his duties to society by committing a crime, then he forfeits his rights to free legal aid as per Act 29(1) of our Constitution. It is the same point that prompted D Mr. Kifunda to appeal to the Tanzania Court of Appeal in the Manywele case (supra). The short answer to that argument is that it is faulty in that it presupposes that the poor accused person has already been found guilty. And I wonder if it makes any great difference if the right to free legal aid for poor accused persons is founded on a E statutory provision or a constitutional provision.

In the event I held that the trial was a nullity because these poor appellants were denied of their statutory and constitutional right to free legal aid, and were not informed of that F right by the trial court.

III. Mandatory Minimum Sentence of 30 years imprisonment whether an inhuman and degrading punishment G

Under Act.13(6)(e) of our Constitution, it is provided that, for the purposes of ensuring equality before the law, the state shall make provisions to the effect that no person shall be subjected to torture or to inhuman or degrading treatment.

The test as to whether a mandatory minimum sentence is inhuman and degrading is H the disproportionate test which is now universally recognised. Punishment which is so excessive,

arbitrary, unusual or disproportionate to the offence as to shock the public conscience, that is the conscience of a reasonable man is prohibited. The provision encompasses a cardinal principle of human justice, namely that punishment should be I proportional to the offence for

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which it is enacted. The said provision draws its meaning from the evolving standards A of decency that mark the progress of a maturing society. The disproportionate test was first propounded in the U.S.A. by the Supreme Court in the case of Weems v United States (1910) 217 U.S. 349 which was discussing the eighth Amendment of the U.S. B constitution. The matter was revisited in Tropp v Dulles (1958) 356 U.S. 86, L. Ed. 630 and later in the case of Furman v Georgia: (1972) 408 U.S. 238 and the case of Hart v Ceiner: (1973) 433 F. 2d. 136.

The above mentioned test was adopted by the supreme Court of Papua New Guinea C in Reference by the Marobe Provincial Government (1958) L.R.C. (Const.) 642. In there a bench of five judges sat to decide if the Summary Offences Act which provided for mandatory minimum sentences of 10 years and other mandatory minimum fine sentences were constitutional and not an inhuman and degrading punishment. Among D the five judges, three (Bredmeyer, Kaputin and McDermott JJJ.) agreed that the disproportionate test was the proper test in the circumstances. However the other two judges (Kidu C.J. and Kapi D.C.J.) did not agree that the disproportionate test ought to be invoked.

Two of the three judges who invoked the disproportionate test (i.e. Bredmeyer and E Kaputin JJ.) held that:

1. That the minimum penalties here, although high were not so excessive as to offend Act. 36 of the Constitution. They said that although the sentences were very severe, F they were not so disproportionate as to be regarded as excessive and unconscionable. They said the sentences reflected a legitimate need for strongly deterrent penalties, providing an index of contemporary community standards.

G 2. The minimum penalties do not infringe the constitution because the harshness of those penalties is tempered by s.138 of the District Court Act which allows for imposing lesser sentences if special reasons are shown as regards character, antecedents, age, health or mental condition of the accused or trivial nature of the H offence or to the extenuating circumstances under which the offence was committed.

On the other hand the third judge Mc Dermott J. invoking the disproportionate test I found that the minimum sentences prescribed

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offended the constitution because each of them imposed a penalty which would be A wholly disproportionate to the offence in readily imaginable situations, as the impugned legislation treated all offences in each category as equally reprehensible up to an arbitrarily set level of punishment, preventing the court considering any of the usual factors relevant in sentencing individuals. B

More recently the Zimbabwe Supreme Court invoked the disproportionate test in the case of The State v Arab [1990] 1. Z.L.R. 253. It concerned the precious Stones Trade Act, 1978 which prescribed minimum sentences for those found dealing in precious stones illegally. The appellant was convicted of dealing in emeralds and was C sentenced to three years imprisonment, being the minimum sentence. The court found no special reasons which could make it pass a sentence lesser than the minimum. The Supreme Court held that the power of the trial court to consider and if appropriated find special reasons allowed for a sentence which was not necessarily disproportionate. D So the provision was held not to be unconstitutional. A disproportionate test had earlier been invoked by the Zimbabwe Supreme Court in Ncube, Tshuma and Ndhlovu v The State [1988] 2 S.A.L.R. 702(ZS) a case which concerned the constitutionality of the punishment of whipping. E

In Botswana, the Court of Appeal in the case of the State v Petrus [1985] L.R.C. (Const.) 699 agreed that the disproportionate test was the appropriate test to find out if any punishment prescribed by legislation was constitutional or not i.e. it was not cruel, inhuman and degrading punishment. F

The above discussion vindicates my earlier statement that the disproportionate test is universally recognised and accepted. I adopt it for use in Tanzania. It will be seen from the above discussion that the disproportionate test focuses on two factors which may render the punishment unconstitutional: First if the minimum sentence is arbitrarily G fixed. Secondly if the sentence is inherently excessive or unconscionable.

On the first point I am satisfied that the Minimum Sentences Act No. 1/1972 as amended by Act No. 10/1989 has fixed the minimum sentences arbitrarily. What the H challenged legislation here effectively does is treat all offences as equally reprehensible up to an arbitrarily set level of punishment. Thus all offences of armed robbery have a minimum sentence of 30 years, while simple robbery has a minimum of 15 years, attempted armed robbery a minimum level of punishment is simply not called for. This I crudely applied across - the board, approach denies to the person being punished

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any consideration of the following factors: degree of participation, the age of the A offender, the offender's previous good record, the remorse and prevalence of the offence e.t.c. If the courts in Tanzania were allowed to pass a lesser sentence if special reasons are adduced, then that would have been alright and the legislation would have been constitutional as shown by the two cases cited above (Morobe case) from B Papua New Guinea and the Arab case from Zanzibar. In order for the Act No. 1/1972 to be Constitutional, s.6(1) of the Act should be amended such that special reasons should be allowed to be adduced for every convict and not only to those convicted on property not exceeding T.Shs. 100/=!!! Moreover the Minimum Sentences Act in C applying minimum terms of imprisonment carte-blanche preclude considerations being given to (a) probation (b) conditional discharge (c) suspended sentences (d) entering into recognizances etc. That much it has rendered the impugned legislation to be arbitrary and disproportionate. D

On the second point, I am of the considered view that the minimum sentence of 30 years imprisonment is disproportionate because it is excessive or unconscionable even for the offence of armed robbery. A punishment is 'excessive' if it makes no measurable contribution to acceptable goals of punishment and hence is nothing more than the E purpose and needless imposition of pain and suffering. Brian Slattery in his book A Handbook on Sentencing in Tanzania (1972) E.A. Literature Bureau says at p. 27:

F Punishment for criminal offences is generally viewed as serving one or more of three main purposes: (a) deterrence, both of the criminal himself (special deterrence) and also of society at large (general deterrence), (b) the rehabilitation of the criminal; and (c) G restraint - the isolation of the hardened or dangerous criminal from society. These objectives are seen as constituting the ultimate justification for sentence imposed by a court in place of the more traditional view which simply holds that evil men deserve to be punished, which notion is sometimes called retribution or the notion of justice. H

The government takes rehabilitation as of top priority as shown in s.61 of the Prisons Act No. 34/1967 - wherein emphasis is laid on training of prisoners so that when the prisoner comes out he becomes a good citizen usefully self employed. Now the 30 I years imprisonment is self-defeating because that period is the life-expectancy

of a Tanzanian, on the average, and so the rehabilitation policy is not in place. It A appears the government on enacting those severe sentences had in mind only retribution and restraint of the offenders. But it should be remembered that restraint of offenders is reserved for recidivists only (hardened and dangerous criminals). And retribution as a sentencing policy is old fashioned and uncivilised as is espouses sadism? It will be B seen therefore that the punishment of 30 years minimum sentence, goes beyond legitimate penal objectives and does not bear a rational relationship to the accomplishment of penological goals which are of sufficient importance to justify its severity. The 30 years imprisonment is indeed purposeless and needless imposition of C pain and suffering, as the legislative purpose could be served by a less severe punishment.

Therefore to suggest that our Parliament had seriously addressed itself to the whole issue of sentencing is a premise which is obviously suspect. This is because it is both D simplistic and unrealistic to suggest that an increase in the severity of punishment by itself will have any significant impact on existing patterns of crime.

Where moral values are central to a problem such as crime, the legal system struggles E to achieve even incidental significance. The working of the criminal justice system can have little, if any, impact on complex sociological phenomena. Any discussion of crime and punishment inevitably overlooks, the heart of the dilemma. Really, what we have is a major problem involving education and policing. F

A sociological phenomenon cannot be effectively influenced by judicial band-aiding. Imposing harsh sentences indiscriminately is nothing other than Kangaroo justice. It just does not work and stands little chance of effectively influencing current crime rate. So G we cannot look for the courts alone, otherwise that would be a fundamental misunderstanding of the role of the

courts. All that the justice seem can reasonably do at the present time is to maintain a predictable and reasonable response to the increasing crime rate, in terms of what most Tanzanians really and truly might be the H consequences of detection on conviction (moderate prison sentences). Any major change can only be effected at the political level, when, if ever, our legislators are encouraged to get serious about what has become a problem of grave national importance. It is my finding therefore that the minimum sentence of 30 years is I unconstitutional because it is inhuman. It is inhuman because it is

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disproportionate and excessive - as it makes no measurable contribution to A acceptable goals of punishment; and goes beyond legitimate penal objectives. It bares no rational relationship to the accomplishment of pennological goals. As White J. said in the case of Furman v Georgia (supra) at p. 391 this punishment is with only marginal contributions to any discernible social or public purpose. A penalty with such B negligible returns to the State would be patently excessive and unusual and cruel punishment violative of the Eighth Amendment.

Therefore I don't agree with the State Attorney Mr. Kifunda that the sentence of 30 years imprisonment is proportionate to the offence of armed robbery. I subscribed to C the view canvassed by the defence counsel Mr. Mbezi that the sentence of 30 years is too severe to deserve to be termed inhuman and cruel. Mr. Mbezi also contended that under Art. 15(2) of our Constitution, Parliament is empowered to take away the personal freedom of an individual only by using law which is fair, reasonable and not D arbitrary. He said that the law on criminal procedure and evidence should be fair and reasonable; and that the law on sentencing should also be fair and reasonable. That he said is the full import of the case of D.P.P. v Daudi Pete Crim. Appeal No. 28 of E 1990 (CAT) which had cited the Indian case of Maneka Gandhi v Union of India (1978) 2 SCR 248. So he said that since a sentence of 30 years imprisonment is patently excessive, then it offends the doctrine expounded in the Daudi Pete case. At this stage, all I can say is that there is merit in the argument brought forth by the defence counsel. F

IV. Corporal Punishment - is it a torture or inhuman and degrading punishment?

Corporal punishment is one of the punishments permissible under s. 28 of the Penal G Code Cap. 16 and where imposed, it is to be inflicted in accordance with the Corporal Punishment ordinance Cap. 17 and the Corporal Punishment Order (G.N. 74/1930 and G.N. No. 76/1941) made thereunder. The independent government of Tanganyika H made corporal punishment mandatory for certain offences under the Minimum Sentences Act No. 29/1963. The Bill was greeted with enthusiasm by parliamentarians some of whom went even further than the government proposals suggesting more torture as part of punishing offenders - see L.P. Shaidi in his "Explaining Crime and Social I Control in Tanzania Mainland: An Historical Socio-economic Perspective", A Ph.D. Thesis submitted

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to the University of Dar es Salaam in 1985, at pp. 323-331 where the author quotes A the Parliamentary Debate.

In 1972 mandatory corporal punishment was abolished by the Minimum sentences Act No. 1/1972 only to be brought back in 1989 by Act No. 10/1989. Once again the honourable members of Parliament shocked the nation by applauding the B re-introduction of corporal punishment. One member even suggested that such punishment should be administered in public (market place) and that women offenders should not be exempted - see the Daily News of 25/4/1989.

Defending the Bill against an objection of a lone parliamentarian on the ground that C corporal punishment might be contrary to the Bill of Rights, the Minister for Justice and Attorney General argued that bandits and robbers were breaching the rights of other citizens and therefore it was in the interest of the community at large that corporal punishment was being re-introduced. The Minister proffered his legal opinion that the D Constitutional validity of the proposed law would be covered under the derogation clause Art. 30 of the Constitution - see Radio Tanzania Report of the Parliamentary proceedings, excerpts broadcast live on 24/4/1989.

It appears to me that basically two different situations can render punishment to be E cruel, inhuman and degrading. First a punishment which is not inherently inhuman or degrading may become so by the mode of execution. Secondly that certain types of punishment are inherently or by their nature cruel, inhuman or degrading e.g. infliction of acute pain and suffering. I shall discuss these two situations seriation. F

As stated above the mode of executing of the punishment can render that punishment to be cruel and degrading. That was the decision of the full bench of five judges of the Court of Appeal of Botswana in the case of The State v Petrus & Anor: (1985) L.R.C. (Const.) 699. That court led by Maisels P. held that the manner of punishment G which was administered by repeated and delayed instalments of corporal punishment was ultra vires the constitution. The legislation there had provided that the convicted person should be given four strokes each quarter in the first and last years of his term H of imprisonment, and the prescribed penalties of imprisonment with corporal punishment were mandatory sentences. In the course of its decision, the Court of Appeal drew support from decisions of the European Court of Human Rights, the U.S. Supreme Court and to a strong dissenting opinion of the Privy Council in Riley & others I

v A.G. of Jamaica (1982) 3 All ER 469. In fact Hon. Mr. Justice Aguda said at A p.p. 727 - 728:

> I am entirely in agreement with the submission of Mr. Hodes for the appellants that corporal punishment administered by instalments when tacked onto a term of B imprisonment, cannot but bring about aggravated torture upon the human being made subject to that sort of punishment. To describe such a type of punishment as degrading is perhaps the very least that can be said of it.

In fact that was the view of the State Attorney Mr.Kifunda in this case. Commenting C on the manner or mode of executing punishment as one of the causes of cruel punishment Mr. Justice Blackman of the U.S. Supreme Court in the case of Jackson & others v Bishop (1968) 404 F. 2d 571 said at pp. 579 - 580: D

There can be no argument that excessive whipping or an inappropriate manner of whipping or too great frequency of whipping or the use of studded or over long straps, all constitute cruel and unusual punishment. Corporal punishment generates hate toward E the keepers who punish and toward the system which permits it. It is degrading to the punisher and to the punished alike. This record cries out with testimony to this effect from the expert penologists, from the inmates and from their keepers. F

Now Tanzania like Botswana has a legislation which sanctions corporal punishment by instalments. The Minimum sentences Act No. 1/1972 as amended by Act No. 10/1989 introduced corporal punishment by instalments. The Corporal punishment Ord. Cap. G 17 is amended in s.12 whereof corporal punishment shall be inflicted in the instalments, each consisting of six strokes, the first instalment at the commencement of the term of imprisonment and the other immediately before the person in question is finally released. That is a horrible situation. H

It is noteworthy that postponed whipping or whipping by instalments was deemed as cruel as long ago as 1880 in apartheid South Africa. In the case of Queen v Nortje (1880) 1 EDC 231 the Eastern District Court of South Africa held that corporal punishment by instalments (part of the lashes to be inflicted at one end the reminder at I the expiration of the sentence) was illegal. The case of

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Queen v Hans Windvogel and Anor [1881] 2 E.D.C. 98 is to the same effect. That A court fond it highly objectionable to sentence persons to lashes to be inflicted at the expiration of a sentence of hard labour. It is my finding therefore that corporal punishment in this case, is unconstitutional because it is cruel, inhuman and degrading as it is inflicted by instalments. B

The second situation I earlier alluded to, is as to whether corporal punishment is inherently and by its very nature is cruel, inhuman and degrading. The leading case in this regard is the decision of the European Court of Human Rights which was cited with approval both by the Zimbabwe Supreme Court and the Botswana Court of Appeal. C It is the case of Tyrer v U.K. (1978) 2 E.H.R.R.1, where a 15 year old boy was sentenced by a juvenile court in the Isle of Man to three strokes of the birch on conviction of assault. The Court found that, while the punishment in the instant case did not constitute torture, or inhuman punishment, it did amount to degrading punishment D and therefore was in violation of Act 3 of the European Convention which is identical to our Act. 13 (16)(e) of our constitution. The substantive paragraph in the judgment deserves to be quoted in extenso, they said at p. 11:

E The very nature of judicial corporal punishment is that it involves one human being inflicting physical violence on another human being. Furthermore, it is institutionalised violence, that is in the present case violence permitted by the law, ordered by the judicial authorities of the State and carried out by the police authorities of the state. Thus, F although the applicant did not suffer any severe or long-lasting physical effects, his punishment whereby he was treated as an object in the power of the authorities - Constituted an assault on precisely that which it is one of the main purposes of Act. 3 to G protect, namely a person's dignity and physical integrity. Neither can it be excluded that the punishment may have had adverse

psychological effects. The institutionalised character of this violence is further compounded by the whole aura of official procedure attending the punishment and by the fact that those inflicting it were total strangers to the offender. H

The aura of official procedure attaining corporal punishment that the European Court refers to with apparent disgust is even mere disgusting in Tanzania under the Corporal punishment order which provides: I

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A 2. A sentence of corporal punishment shall be inflicted upon adults upon the bare buttocks with a light rattan cane which is free from knots. Such cane shall be not less than half an inch and not more than five-eights of an inch in diameter and shall not exceed Forth-two inches in length.

B 4. During the infliction of a sentence of corporal punishment the person undergoing punishment shall be so secured that he cannot, by reason of the movement of his body, cause the strokes to fall upon any other part of his body then upon which they C are to be inflicted in accordance with this Order.

If as in this case, one has to use a value judgment, it seems to me that the corporal punishment incapably falls within the definition of inhuman and degrading punishment. D

In the case decided by the Supreme Court of Zimbabwe Ncube, Tshuma & Ndhlovu v The state (1988) L.R.C. (Const.) 442 after reviewing the position in Zimbabwe, South Africa, U.K., Canada, Australia and The United States Mr. Justice Gubbay concluded that: E

Fortunately on the few occasions where the issue of whether whipping is Constitutionally defensible has been judicially considered, it appears to have resulted in little difference of opinion, whether imposed upon an adult person or a juvenile offender the punishment F in the main has been branded as both cruel and degrading.

Mr. Justice Gubbay described the penalty of whipping as:

G ... not only inherently brutal and cruel. It is relentless in its severity and contrary to the traditional humanity practised by almost the whole of the civilised world, being incompatible with the evolving standards of decency. H

The approach to constitutional interpretation adopted by the Zimbabwe Supreme Court and Botswana Court of Appeal has been in Bangalore, India in February 1988. The Bangalore Principles which that meeting adopted, recognised and affirmed the relevance and importance of: I

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MWALUSANY J

A ... a growing tendency for national courts to have regard to these international norms for the purpose of deciding cases where the domestic law - whether constitutional, statute or common law - is uncertain or incomplete.

That view was reiterated by the Commonwealth Judges in the Harare declaration of B Human Rights (Harare principles - Judicial Colloquium in Harare, Zimbabwe 19-22nd April 1989) and

also in the Banjul Affirmation (Judicial Colloquium in Banjul, The Gambia 7th to 9th November, 1990).

It is gratifying to note that the Nyalali Commission (1992) (The Presidential C Commission on whether Tanzania should adopt a one-party or multi-party system) in its Report, Book Three at p. 10. holds the view that corporal punishment is inherently cruel, inhuman and degrading and contrary to Art. 13(6)(3) of our Constitution. Such a considered view from eminent Tanzanians should weigh highly on this court. There D can be no doubt that corporal punishment is against the dignity of man as stipulated in Art. 9(1)(a) of our Constitution which is part of the Fundamental Objectives and Directive Principles of State Policy. The Zimbabwe Supreme Court in the Ncube case (supra) on the same theme said: E

The raison d'etre underlying section 15(1) is nothing less than the dignity of man. It is a provision that embodies broad and idealistic notions of dignity, humanity and decency, against which penal measures should be evaluated. It guarantees that the power of the F State to punish is exercised within the limits of civilised standards. Punishments which are incompatible with the evolving standards of decency that mark the progress of maturing society or which involve the unnecessary and wanton infliction of pain, are repugnant. Thus a penalty that was permissible at one time in own nation's history is G not necessarily permissible today. What might not have been regarded as inhuman or degrading decades ago may be revolting to the new sensitivities which emerge as civilisation advances. H

Those decisions on the unconstitutionality of corporal punishment are examples of the prudent application of international human rights norms to domestic human rights law. They identify with evolving standards of decency and humanity. Tanzania cannot be left behind in that boat. I

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MWALUSANY J

Therefore when the Attorney - General suggests above that corporal punishment is A constitutional because it is saved by the derogation clause in Act. 30(2)(b) of our Constitution, it beats my comprehension. Act. 30(2)(b) states that a legislation which infringes the constitution is valid if it is wholly for ensuring the interests of defence, public B safety, and public order. However as pointed out by the Tanzania Court of Appeal in the case of the D.P.P. v Daudi Pete Criminal Appeal No. 28 of 1990, any derogation clause must meet the proportionality test or reasonableness test. It should be given a restricted but purposive construction, so that the basic rights of the citizens are not C marginalised nor completely emasculated by the derogation clause. For the derogation clause to apply to a given situation it must be shown that it is required by a compelling social need and that it is so framed as not to limit the right in question more than is necessary to achieve a legitimate objective. For example in the Daudi Pete case D (supra) it was found that the legislation denying accused persons bail was too broad as to take away the basic right to freedom to all and sundry. Equally here the derogation clause cannot be interpreted so broadly so as to cover every cruel, inhuman and degrading punishment. A derogation clause should not be interpreted as entitling the E government to impose vague or arbitrary limitations on basic human rights; but that limitation should be reasonable and only be invoked when there exists adequate safeguards and effective remedies against abuse. In other

words a derogation provision has to be construed narrowly. I do not conceive it to be the duty of this court to construe any of the provisions of the Constitution as to defeat the obvious ends the F Constitution was designed to serve. As the Tanzania Court of Appeal observed in the case of A.G. v Lesinoi s/o Ndeinai & Others: [1980] T.L.R. 214. 'A Constitutional provision should not be construed so as to defeat its evident purpose, but rather so as G to give it effective operation'. I may point out that Prof. Issa G. Shivji is of the same view that the derogation clause does not save corporal punishment from being unconstitutional see his paper 'State Coercion and Freedom in Tanzania' a Monograph by the Institute of Southern African Studies, National University of Lesotho (1989) at P.22. H

In conclusion I hold that corporal punishment not only is it inherently inhuman and degrading, and so unconstitutional; but in addition international statements of human rights indicate that such type of punishment has become simply unacceptable in a civilized and democratic society. The weight of international opinion is against corporal I punishment. It is up to us to remain an island on ourselves.

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MWALUSANY J

V. Miscellaneous Matters A

Under this head, I will have to consider as to whether the offence of armed robbery exists, secondly as to whether the trial court had power to impose the sentence that was awarded and finally review the evidence on record. B

On the first plaint Mr. Mbezi argued that the offence of armed robbery is not contained in the Penal Code Cap. 16. He said that the trial magistrate was wrong to sentence the two appellants for an offence which they were not charged with nor convicted of. In fact that is the same view that was canvassed before Mushi J. in the case of Ibrahim C Hassani & another v R. Tanga High Court Criminal Appeal No. 92 & 107/1990 that argument found favour with Mr. Justice Mushi who quashed the sentences. I understand the D.P.P. is appealing to the Tanzania Court of Appeal. However my considered view is that the offence of armed robbery is there in the Penal Code in sections 285 and D 286. This comes about if the court invokes a generous and purposeful construction on the Penal Code and the Minimum Sentences Act. Armed robbery is committed under sections 285 and 286 where the offender is armed with any dangerous or offensive weapon or instrument. that is what Parliament intended to curb. Therefore Mr. E Mbezi's argument fails.

The next point is as to whether the trial magistrate had power to impose a 30 year prison sentence. It will be recalled that under section 170 (1) of the Criminal Procedure Act. No. 9/1995 a subordinate court may not pass a sentence of imprisonment F exceeding eight years for any offence falling under the Minimum Sentences Act No. 1/1972. However section 170 (4) of the criminal Procedure Act states:

G The provisions of subsection (1) shall be without prejudice to the provisions of any written law authorizing a subordinate court to impose in relation to any offence specified in such written law, a sentence in excess of the sentences provided for in that subsection. H

That provision was a subject of interpretation by Msumi J. in Abdarahman Abdallah Magosso v R. Dar es Salaam (High Court) Criminal Appeal No. 36/1990. In the judgment delivered on 19/9/1991 Msumi J. held that since the provisions in the Penal Code did not confer on the subordinate courts extended power of sentencing, then it I was illegal for the subordinate courts to pass a sentence of

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over eight years for scheduled offences. I agree with that view. What the trial A magistrate should have done was to commit the accused to the High Court for sentencing. The trial magistrate had no power to impose the 30 year prison sentence.

It behoves me to review the evidence on record, in case I am wrong on the above B thesis about the constitutionality of the trial. The case involves the identification of the culprits at the scene of the crime. There was a torch at the scene of the crime. The culprits are village-mates and so the faces were quite familiar. The bandits spent a considerable long time demanding to be shown the money. The husband and wife C purported to have had identified the culprits. The appellants offered an alibi. The trial magistrate warned himself of the danger of convicting the culprits on evidence of identification which is not water-tight. In my considered view the convictions were proper. The case was proved beyond any reasonable doubt. D

VI. Conclusion

The trial is a nullity because the appellants who are indigent were denied of their statutory and constitutional right to legal representation paid for by the State. The trial E was also a nullity because the appellants were not informed of their right to have legal representation. As regards sentence, the trial magistrate had no power to pass a sentence over eight years imprisonment. In any case the mandatory minimum sentence of 30 years imprisonment under the Minimum Sentences Act. No. 1/1972 as F amended by Act No. 10/1989 is unconstitutional and void because it is an inhuman and degrading punishment. The mandatory minimum sentence of 12 strokes of corporal punishment (not 10 strokes as the trial magistrate imposed) is also unconstitutional and void as it is an inhuman and degrading punishment, prohibited by Art. 13(6)(3) of our G Constitution.

Should I order a retrial? The appellants have been in prison now 2 1/2 years. I think this is a fit case where I have to leave it to the D.P.P. to decide whether appellants should be retried or not. Thus I leave it to the D.P.P. to decide. H

Consequently the appeal is allowed. The convictions are quashed and sentences are set aside. The appellants should be released forthwith, unless held for any other offence.

I Order accordingly.

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A

MUSSA ALOBOGAST MTALEMWA v REPUBLIC 1992 TLR 177 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Ramadhani JJA, Kisanga JJA, Mnzavas JJA

29 June 1992
Flynote
Criminal Practice and Procedure - Jurisdiction - Whether Court of Appeal has revisional B jurisdiction.
Court of Appeal Rules - Jurisdiction - Whether Court of Appeal can reinstate judgment of a District Court reversed by the High Court without a cross-appeal by the Republic to the Court of Appeal - S.4(2) Appellate Jurisdiction Act 1979 and s. 36 of the Tanzania Court C of Appeal Rules, 1979.
Court of Appeal Rules - Criminal Appeals to Court of Appeal - Procedure and practice - Appellate Jurisdiction Act 1979 and the Tanzania Court of Appeal Rules, 1979. D
-Headnote
In the District Court of Ilala was Mussa Alobogast Mtalemwa charged together with two other persons. Mtalemwa, the appellant was convicted of robbery while the rest were set free. He appealed to the High Court which quashed the conviction on robbery E and substituted it with one of receiving stolen property c/s. 311 (1) of the Penal Code, Cap 16. Still dissatisfied with this conviction he appealed to the Court of Appeal. However there was no cross - appeal by the Republic against the judgment of the High Court.
When hearing the appeal, the Court of Appeal invited counsel for the appellant to F address the Court on whether the Court had jurisdiction to quash the decision of the High Court and restore that of the District Court without there being a cross-appeal by the Republic. Counsel for the appellant contended that the Court had no jurisdiction to reinstate the judgment of the District Court and that the Court has no revisional G jurisdiction.
Held: (i) The Court of Appeal lacks revisional jurisdiction;
(ii) when a party appeals to this Court, the Court is not just limited to either upholding the appeal and granting the reliefs prayed for or to dismissing the appeal H and leave intact the decision appealed from;
(iii) if a party appeals against conviction, then, instead of dismissing the appeal or of allowing it and acquitting him, this Court could find him guilty of an offence more I serious than the one with which he was charged and acquitted by the lower Court and

consequently enhance the sentence. Likewise, if the appeal is against sentence only, in A appropriate case, this Court could enhance it instead of reducing it as pleaded by the appellant, or just leave it intact.
Case Information
Appeal dismissed. B
Maina, for the appellant
Munisi, for the respondent
[zJDz]Judgment

Ramadhani, Kisanga and Mnzavas, JJ.A.: The appellant, Mussa Alobogast C Mtalemwa, was charged together with two other persons. One of them was acquitted as there was no case to answer. The other was acquitted of the charge of receiving stolen property. The appellant, on the other hand, was convicted of robbery.

The District Court of Ilala was satisfied that on 3rd July, 198 (at about 8.15 p.m.) D PW.1 was driving a saloon car, TZA 159, belonging to PW.2, along Bagamoyo Road. The appellant and another person stopped him for a lift to Keko. The appellant sat on the front seat and suddenly he pointed a pistol at PW.1 ordering the car to be driven to the National Stadium where PW.1 was ditched out and beaten to unconsciousness. E When PW.1 regained his senses he reported the matter to the Kilwa Road Police Station where he was taken to the Oysterbay Police Station. On 5th July as PW.1 was in a Police car going through the Morocco Road he spotted out what he was convinced to have been his stolen car but then it had AAJH 5238 as its registration number. The F driver of that car refused to stop. So the Police Van gave chase and the driver came to a halt when, according to PW.4, a pistol was leveled at him. The appellant was that driver and PW.1 identified him as one of the two robbers.

In his defence the appellant alleged that the vehicle was given to him by the second G accused person to process pre-registration formalities of evaluation and custom fees as it had been imported from Zambia. As already said that story was rejected by the trial Court.

On appeal to the High of Tanzania (Mkwawa, Ag. J., as he then was) quashed the H conviction of robbery and substituted it with one of receiving stolen property contrary to section 311 (1) of the Penal Code. The learned Judge had two reasons for doing so. One, he said "when the only evidence against an accused is the finding of recently stolen property in his possession, an accused is entitled to an acquittal if he gives an explanation which may reasonably be true". Two, the learned Judge reiterated that "it I is unsafe to support

a conviction on the bare assertions of witnesses that they had recognized the A accused". He went on to cite the case of Ludovick s/o Kashaku v. R [1967] HCD 194 where reasons for identification, such as the sound of voices or distinctive clothing, were required to be given. The Judge then reduced the punishment from fifteen to eight years imprisonment. B

The appellant had a memorandum of appeal containing four grounds of appeal. However, his learned advocate, Mr. Maira, decided to abandon the second ground, argued the first and the third grounds together, and concluded with the fourth ground. The respondent/Republic was represented by Miss Munisi, learned State Attorney. C

For reasons which will be obvious in a moment, we do not deem it necessary to make a resume of the submissions for an against the appeal. When we were deliberating on the appeal so as to write a judgment, we were in no doubt about the guilt of the D appellant. What exercised our minds was whether the appellant was not after all guilty of robbery as the District Court had found him to have been.

That thought, in its turn, brought to the surface two preliminary points. The first was that we had not been addressed on whether or not the appellant is guilty of robbery. E Second, we

wondered whether we could quash the decision of the High Court and restore that of the District Court without there being a cross-appeal by the Republic.

To clear up those two points we decided to re-open the matter and invite both Counsel to address us after we had given them a sufficient notice. F

Mr. Maira was resolute that this Court could only uphold the judgment of the High Court or quash it and acquit the appellant and that the Court does not have jurisdiction to reinstate the judgment of the District Court. He had two reasons for saying so: First, G he said, this Court could only act where there is before it a writ of error and that it was not for the Court to search for errors. Here, the learned Counsel submitted, the writ of error before us challenged the conviction against receiving stolen property and that there was no writ of error challenging the acquittal of the appellant of the charge of H robbery which is what the High Court had done. As his second reason Mr. Maira pointed out that this Court lacks revisional jurisdiction and so it could not invoke those powers to reinstate the judgment of the District Court.

As to whether or not there is sufficient evidence on record to sustain a conviction for I robbery, Mr. Maira submitted that there are

grave doubts on the correctness of the identification of the appellant by PW.1. The A learned Counsel contended that what PW.1 identified was the vehicle when he came across it on Morocco Road and not that the appellant was the robber.

Miss Munisi, on the other hand, said that it was open to this Court to ascertain the B propriety or otherwise of the quashing of the conviction of robbery by the High Court without there being a cross-appeal. She referred us to section 14 (2), of the Appellate Jurisdiction Act, 1979 (hereinafter referred to as the Act) and she also cited the decision of the East African Court of Appeal in Merali and Others v R. [1971] H.C.D. No. 145. C

As for the conviction of robbery, Miss Munisi submitted that the identification of the appellant by PW.1 was not challenged in cross-examination. Then she added that the invocation of the doctrine of recent possession was proper as the appellant was caught driving the vehicle just three days after the robbery. Miss Munisi concluded that the D conduct of the appellant at the time of arrest was inconsistent with the presumption of innocence.

Admittedly we lack revisional jurisdiction, so, can we act where there is no cross appeal?

This question was considered by this Court in Godfrey James Ihuya and 3 Others E v R. [1980] T.L.R. 197. This Court dismissed the appeals of the appellants and upheld the convictions of manslaughter against all four of them. The matter then which was debated was whether this Court could enhance the punishment given to them without there being a cross appeal by the Republic. It was held that this Court had such F powers. Reliance was put on Rule 36 of the Tanzania Court of Appeal Rules, 1979, which reads:

> The Court may, in dealing with any appeal, so far as its jurisdiction permits, confirm, G reverse or vary the decision of the High Court, or remit the proceedings to the High Court with such directions as may be appropriate, or to order a new trial, and to make any necessary incidental or consequential orders, including orders as to costs.

It was held that the word "vary" in this Rule means that "the Court has power to H increase or decrease the sentence when either the prisoner or the Republic appeals".
The word "vary" is subjected to "so far as its [Court's] jurisdiction permits". The question is whether jurisdiction permits,. So here we go further to say that when a I party appeals to this Court
1992 TLR p181
RAMADHANI JJA, KISANGA JJA, MNZAVAS JJA
then we are not just limited either to uphold the appeal and grant the reliefs prayed for A or to dismiss the appeal and leave intact the decision appealed from. The party who appeals lays himself bare and gives the Court the power it would not have had if he had not appealed. Thus there is a third alternative. This is where the Court says: 'Yes, the lower Court has indeed erred but not in the way the appellant contends that injustice B has been done to him but rather that the appellant ought to have been found guilty of a more serious offence or that he deserved a stiffer sentence than the one that was administered to him'. Thus if a party appeals against conviction then instead of dismissing the appeal or of allowing it and acquitting him, this Court could find him C guilty of a more serious offence of which he was charged but acquitted by the lower Court and consequently enhance the sentence. Likewise, if the appeal is against sentence only, then, in appropriate case, this Court could enhance it instead of reducing it as was pleaded by the appellant or leaving it intact. D
Mr. Maira talked about a writ of error. First of all a writ of error was the mode of appealing used in criminal proceedings in England but that was abolished by section 29 (1) of the Criminal Appeal Act, 1907. So that is not the requirement even in England E now. Be it as it may, in Tanzania appeals to this Court are governed by the Act and the Tanzania Court of Appeal Rules, 1979 made under it. A party to a criminal proceedings in the High Court or in a subordinate Court with extended jurisdiction who has a right of appeal under the Act has first to file a Notice of Appeal under Rule 61. In such F Notice of Appeal the aggrieved party indicates whether the appeal is against conviction or sentence or both. Now the notice of appeal has the effect of delimiting our powers to what is appealed against. It would be outside our powers to look into conviction when the notice of appeal was on sentence only. The appellant then has to concisely G enumerate his grievances in a memorandum of appeal (Rule 65). This is what, we suppose, Mr. Maira calls a writ of error. Without the leave of the Court, the appellant would not be heard on any matter not contained in the memorandum of appeal (Rule 74 (a)). It seems to us utterly inconceivable that whereas we can allow an appellant to H go outside his memorandum, we cannot ourselves do so. Now once we have done that and have come to the opinion that the lower Court had erred we then can step into the shoes of the lower Court and make the necessary corrections under section 4 (2) of the Act as Miss Munisi submitted and as was done by our predecessor in Merali's case. I
1992 TLR p182
In fact this Court again did that in Abdurabi Ally Yusufu & Ally Yusufu Abdurabi v. A R. Criminal Appeal No. 59 of 1988 (unreported). that was an appeal of a former Member of Parliament for Songea against his conviction of unlawful possession of Government trophies.

This Court found him guilty of the more serious offence of dealing in Government trophies of which he had been charged in the alternative but was B acquitted by the learned trial judge. There was no cross-appeal and in fact the appellant was neither represented nor was personally present at the hearing of the appeal as he had indicated his desire not to be present.

We have found it pertinent to dwell on this point for a considerable length for the sake C of dispelling any doubt as to the powers of this Court in the absence of a cross-appeal.

Now to get back to the substance of the appeal, we agree with Miss Munisi that there is watertight evidence with which to convict the appellant of robbery. The doctrine of D recent possession coupled with the inexplicable criminal conduct immediately prior to his arrest corroborates the identification by PW.1 though that was not necessary.

We therefore quash the conviction of receiving stolen property and substitute it was E one of robbery c/s 285 and 286 of the Penal Code. The sentence of eight years passed on him is hereby enhanced to the minimum sentence of thirty years provided by the amendment of Act No. 10 of 1989.

F Appeal dismissed.

1992 TLR p182

G

[zRPz]TRANSPORT EQUIPMENT LIMITED v DEVRAM P. VALAMBHIA 1992 TLR 182 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Makame JJA, Kisanga JJA, Ramadhani JJA

2 July 1992 H

Flynote

Civil Practice and Procedure - Application - Consolidation of applications - Rationale.

Civil Practice and Procedure - Stay of execution - Of only part of the award - Whether I proper.

1992 TLR p183

MAKAME JJA, KISANGA JJA, RAMADHANI JJA

This concerned two references from the ruling of a single judge of the Court of A Appeal. In the first the learned judge refused to allow an application to consolidate for hearing two applications before him. In the second the learned judge ordered only a partial stay of execution pending determination of an intended appeal. B

Held: (i) To refuse to consolidate will be to fragment the process and delay the outcome;

(ii) a consideration of the general damages cannot exclude a reflection on the award refused to be stayed. The two may well have a bearing one on the other if, as in this case, the award of general damages was ordered to be stayed we think it would have C been neater to stay the other part of the award.

Case Information

Order accordingly.

Mbuya, for the applicant D
Maira and Marando, for the respondent
[zJDz]Judgment
Makame, Kisanga and Ramadhani, JJ.A.: When these two References, concerning the same parties, came up for hearing, it was agreed, all round that they should be E consolidated for hearing. They arise out of the same transaction and share a common background of five different applications to single judges of this Court. It was clearly desirable to deal with two References together. Mr. Mbuya, learned advocate, represented the applicant, Transport Equipment Ltd., while Mr. Maira and Mr. F Marando learned Counsel, advocated for the respondent, D.P. Valambhia. Both Mr. Maira and Mr. Marando addressed the Court on behalf of the respondent.
Civil Reference No. 7 of 1991 came to us as a result of Omar, J.A. refusing to consolidate for hearing two applications before him: Civil Application No. 13 of 1991 G by the present respondent, which sought to prevent the present applicant from appealing against the decision of Rubama, J. in the main suit, High Court Civil Case No. 210 of 1989, for failure to take essential steps in instituting an appeal; and Civil Application No. 29 of 1991 in which the present applicant applied for extension of time for serving the H Respondent with a copy of the Notice of Appeal. The application for consolidation was by Mr. Mbuya and, as afore said, it was refused. In the event Omar, J.A. did not have to go into the merits of the two applications.
The argument in favour of consolidation was that the two applications were essentially I two sides of the same coin, as it were.

That is to say if, for example the single judge decided that the present applicant had A indeed failed to take essential steps and so strike off the Notice he could not then turn round in the other application and permit the present applicant to comply with all the formalities. And vice versa.
Against consolidation it was submitted that for administrative reasons one of the B applications was not listed for that particular day, in the first place, and that one application could be determined without affecting the course of the other.
Basically the same arguments were repeated, if with elucidation, before us. C
We are grateful for the inputs by learned Counsel. The destination of these exercises must be to do justice, and in a conclusive and meaningful manner. We think with respect to refuse to consolidate will be to fragment the process and delay the outcome. We are D satisfied that to consolidate would be the better course in the circumstances, and we so order. The two applications shall therefore go to a single judge who shall hear them together as consolidated, and determined them. We respectfully urge an early hearing as the outcome there from will have a close bearing on other aspects of the dispute between the parties. E
The second Reference we dealt with was No. 10 of 1991 as already indicated. The application before a single judge, Mapigano, Ag. J.A. was Civil Application No. 15 of 1991. Following certain decisions by Rubama, J. in the High Court, there was an application for a grant of stay of the execution of the decree. For reasons Mapigano, F Ag. J.4, lucidly explained, there was ordered

only a partial stay. He granted a stay in respect of only the general damages pending determination of the intended appeal but declined to grant a stay in respect of the 40% of the contract sum.

Mr. Mbuya urged before us that if they went on appeal they would challenge even the G award of 45% of the contract sum. Mr. Marando, for the respondent, opposed the application and submitted that there was no valid ground for faulting Mapigano, Ag. J.A.'s decision. He further submitted that one of the factors to be taken into account was the substance of the intended appeal and suggested that there was none here. H

We have given anxious thought to the matter. We think, with respect, that a consideration of the general damages cannot exclude a reflection on the award refused to be stayed. The two may well have a bearing one on the other and if, as in this case, I the award of general damages was ordered to be stayed we think it would have

been neater to stay the other part of the award. It is not in receivable that the applicant A would raise arguments on the part of the award stayed which would impinge on the portion not stayed.

We therefore allow the Reference and accordingly order the whole decree stayed pending determination of the appeal depending, of course, on the outcome of the hearing of the consolidated Applications 13 and 29 of 1991 before a single judge. B Despite the proliferation of applications, as observed, we very much hope that at the end of the tunnel a truly just and conclusive and of this chequered conflict will have been achieved.

C Order accordingly.

1992 TLR p185

D

[zRPz]PRINCIPAL SECRETARY, MINISTRY OF DEFENCE;
NATIONAL SERVICE v DEVRAM VALAMBHIA 1992 TLR 185 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Makame JJA, Kisanga JJA, Ramadhani JJA

3 July, 1992 E

Flynote

Civil Practice and Procedure - Court of Appeal Rules - Reference - Point of law involved - Whether the said point constitutes sufficient reason to allow the reference. F

-Headnote

This was a reference arising from the ruling of a single judge of the Court of Appeal granting an application to strike out a notice of appeal for failure to take essential steps in the proceedings and at the same time refusing a counter application for extension of G time to take such essential steps.

During the hearing counsel for the applicant urged the Court to allow the reference on the ground that the intended appeal involved a point of law. The Court considered whether the said point of law involved constituted "sufficient reason" in terms of rule 8 H of the Court of Appeal Rules.

Held: (i) Where, as here, the point of law at issue is the illegality or otherwise of the decision being challenged, that is of sufficient importance to constitute "sufficient reason" I within the meaning of rule 8 of the Rules for extending time;

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KISANGA JJA, MAKAME JJA, RAMADHANI JJA

A (ii) when the point at issue is one alleging illegality of the decision being challenged, the Court has a duty, even if it means extending the time for the purpose, to ascertain the point and, if the alleged illegality be established, to take appropriate measures to put the matter and the record right. B

Case Information

Appeal allowed.

Mrema, for the applicant

Marando, for the respondent. C

[zJDz]Judgment

Kisanga, Makame and Ramadhani, JJ.A.: This is a reference arising from the ruling of a single Judge of this Court granting an application to strike out a notice of appeal for failure to take essential steps in the proceedings, and at the same time refusing a counter D application for extension of time to take such essential steps.

It was common ground that the Principal Secretary Ministry of Defence and National Service, failed to serve on Mr. D.P. Valambhia a copy of his notice of appeal and a copy of his application to the Registrar, High Court, for copy of proceedings in E respect of an intended appeal against the ruling of the High Court requiring him to comply with a garnishee order of that Court within three weeks.

It was claimed on behalf of the Principal Secretary that one Mr. Mtangi of the F Attorney-General's Chambers had been duly instructed to serve copies of the said documents on the opposite party but he failed to do so. However, the said Mr. Mtangi was not made to file an affidavit to confirm that he was duly instructed to serve the documents on the opposite party and if so why he did not comply therewith. In G refusing the counter-application for extension of time the learned single judge took the view that no sufficient reason had been disclosed in terms of rule l8 of the Court of Appeal Rules because the information so far adduced through the affidavits did not rule out the possibility that the said instructions might not have been given to Mr. Mtangi in H due time. We, too share that view, and if there was nothing also we would have so difficulty in dismissing this reference.

But Mr. Mrema, the Director of Civil and International Law Department in the Attorney-General's Chambers who appeared for the Principal Secretary Ministry of Defence and National Services, had urged us also to allow the reference on the I ground that the

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intended appeal raises an important point of law. The said point of law, he went on, A concerned the interpretation of rule 2A of Order 21 of the Government Proceedings (Procedure) Rules 1968 (G.N. 376 of 1968) whether in terms of that rule the garnishee order made by the High Court came within the ambit of section 15 of the Government Proceedings Act, 1967 which prescribes the mode of satisfying or executing Court B orders against the Government or Government offices.

It is noted that this point was the subject of considerable submissions by counsel in the High Court and the learned High Court judge in his ruling dealt with it at length, although C the single judge of this Court in his ruling did not allude to it at all. Before us Mr. Mrema submitted, in effect, that the High Court put a wrong interpretation on rule 2A of order 21 of the Government Proceedings (Procedure) Rules 1968 (G.N. 376 of 1968), and thereby came to the erroneous conclusion that the decree could properly be D executed by issuing a garnishee order when it could not. Mr. Mrema strongly felt that this Court should declare what the law is on the matter. On the other hand Mr. Marando, the learned advocate appearing for Mr. Valambhia, ardently maintained that the alleged point of law did not in fact arise because the garnishee order in question E did not come within the ambit of Section 15 of the Government Proceedings Act 1967. Upon a glance through the record, and having regard to the submissions by counsel for both sides, we think that the matter is arguable; a point of law is involved and the decision on it may go one way or the other. The question which falls for consideration F now is whether the said point constitutes "sufficient reason" in terms of rule 8 of the Court of Appeal Rules to warrant the exercise of discretion in favour of the Principal Secretary Ministry of Defence and National Service to extend the time for him to serve copies of the said documents on the opposite part. G

The same question arose in the case of The Commissioner of Transport v The Attorney-General of Uganda and Another [1959] E.A. 329 involving somewhat similar facts. There the Court of Appeal for Eastern Africa refused to extend the time and in the course of doing so it said, inter alia: H

> As to the argument that a point of law of fundamental importance was at issue, it is to be noted that this contention was not supported by the respondent. We were not impressed by the argument and thought that there would be little difficulty in testing the matter in I other proceedings. We saw no reason

A to hold that the importance of the point at issue was such as to constitute sufficient reason for extension of time under r. 9 of the Appeal Rules.

In other words the Court refused to extend time because the point of law at issue was B not of sufficient importance to justify the extension. The corollary of that is that in some cases a point of law may be of sufficient importance to warrant extension of time, while in others it may not.

The point of law at issue in that case was whether contracts of a certain type required C registration as a floating charge under the law and, as shown above, the Court held that the

point was not of sufficient importance to warrant extension; it taking the view that the matter could be tested in other proceedings. In other words the Court was saying that the opinion of the lower Court on the question whether that type of contracts required D registration as a floating charge was not of sufficient importance to warrant extension of time and the decision embodying that opinion should remain on record.

In the case before us, however, the point at issue, in effect is the illegality or otherwise E of the garnishee order as a means of executing the Court order against the Government. For, should it turn out that the garnishee order is within the ambit of Section 1 of the Government Proceedings Act, 1967 as urged by counsel for the Principal Secretary Ministry of Defence and National Service, then the order is illegal and hence a nullity. F We think that where, as here, the point of law at issue is the illegality or otherwise of the decision being challenged, that is of sufficient importance to constitute "sufficient reason" within the meaning of rule 8 of the Rules for extending time. To hold otherwise would amount to permitting a decision, which in law might not exist, to stand. In the context G of the present case this would amount to allowing the garnishee order to remain on record and to be enforced even though it might very well turn out that order is, in fact a nullity and does not exist in law. That would not be in keeping with the role of this Court whose primary duty it is to uphold the rule of law. H

It should be noted that the position in this case is distinguishable from that in the case of The Commissioner of Transport v The Attorney-General of Uganda and Another earlier cited. There the point at issue was not the illegality of the type of contracts in question; it was simply the correctness or otherwise of the opinion whether or not that I type of contracts required registration

as a floating charge. Indeed the refusal by the Court to extend time amounted to A allowing the decision being challenged to remain on record and to be enforced. That was perfectly in order, for, the decision was itself valid in law, while the issue whether or not the opinion expressed therein is erroneous should, in the Court's own discretion, await decision in other proceedings. Such is not the position in the present case where B the point at issue is the illegality of the decision being challenged. In our view when the point at issue is one alleging illegality of the decision being challenged, the Court has a duty, even if it means extending the time for the purpose, to ascertain the point and, if the alleged illegality be established, to take appropriate measures to put the matter C and the record right.

There were certain weaknesses and failures on the part of the Principal Secretary Ministry of Defence and National Service, and some members of the Attorney-General's Chambers in their handling of this matter. However, we think that D the importance of the point of law at issue outweighs our consideration and such failures and weaknesses. In the result, the reference is allowed. The notice of appeal is restored and The Principal Secretary Ministry of Defence and National Service is to serve the opposite party with copies of the documents in question within four days of his receipt E of this ruling. We make no order as to costs.

Appeal allowed.

F

[zRPz]TAHFIF MINI SUPER MARKET v B.P. TANZANIA LTD 1992 TLR 189 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Ramadhani JA

G

24 July 1992
Flynote
Court of Appeal Rules - Appeals - Appeal to the Court of Appeal - Whether leave of the High Court always necessary.
Civil Practice and Procedure - Temporary Injunction - Material considerations for its H grant.
-Headnote
The applicant unsuccessfully applied for a temporary injunction in the High Court of Tanzania. He had filed a notice of appeal against that refusal but meanwhile he filed a notice of motion for a temporary injunction. Before hearing the application, the I advocate for the
1992 TLR p190
RAMADHANI JA
respondent sought to strike out the notice of appeal on the ground that the applicant A had neither obtained nor applied for leave.
Held: (i) The ruling of the High Court is a preliminary decree and, under section 5(1) (a) of the Appellate Jurisdiction Act, 1979, no leave to appeal is required; B

(ii) considering the public importance of services rendered the disputed premises should immediately be restored to the applicant.

Case Information
Appeal allowed. C
Mwajasho, for appellant
Mkatte, for the respondent.
[zJDz]Judgment
Ramadhani, J.A.: The applicant, Tahfif Mini Super Market, unsuccessfully applied D for a temporary injunction before Rubama, J. He has filed a notice of appeal against that refusal but meanwhile he has this notice of motion praying for a temporary injunction.
A couple of days before this application was to be heard. Mr. Mkatte, the learned E counsel for the respondent, B.P. Tanzania Ltd., with the ability of a Chinese acrobat, made a preemptive move and sought to strike out the notice of appeal of the applicant. In his notice of motion Mr. Mkatte argued that the applicant has neither obtained nor applied for leave to appeal to this Court.
I must say the move by Mr. Mkatte was unprocedural. It would have been proper if F he had given notice of a preliminary objection under Rule 100. Admittedly that rule talks of "preliminary objection to any appeal". However Rule 2(1) defines "appeal" to include "intended appeal" as Mr. Mwajasho, the learned advocate for the applicant, did not G object, and I

consolidated the two notices of motion. So the first application I have to address myself to is that by Mr. Mkatte; prayer for striking out the notice of appeal.

The issue here is whether or not leave to appeal is required. This in turn poses the question of what was the ruling of Rubama, J. refusing to grant a temporary injunctions H an order or a decree. If it was the latter, that is a decree, then that is covered by Section 5(1)(a) of the Appellate Jurisdiction Act, 1969 and no leave to appeal is required. But if the ruling was an order then it falls under Section 5 (1)(c) and leave to appeal is required.

Mr. Mkatte submitted that the ruling of Rubama, J. as an order. He relied on the I interpretations of decree and order as provided buy

1992 TLR p191

RAMADHANI JA

section 3 of the Civil Procedure Code, 1966 and the ruling of Mnzavas, J.A. in A Godes Ltd. v Nimrod E. Mroso Civil Application No. 5 of 1990 (unreported). On the other hand Mr. Mwajasho contended that ruling of Rubama, J. was a preliminary decree. The learned advocate argued that what determines whether a ruling is an order or a decree is the substance not the form. B

Section 3 of the C.P.C. defines a decree thus:

> ... the formal expression of an adjudication which, so far as regards the court expressing it, conclusively determines the rights of the parties with regard to all or any of the C matters. In controversy in the suit and may be either preliminary or final ... but shall not include -
>
> (a) an adjudication from which an appeal lies as an appeal from an order." D

Then an explanation follows thus:

> E A decree is preliminary when further proceedings have to be taken before the suit can be completely disposed of. It is final when such adjudication completely disposes of the suit. It may be partly preliminary and partly final.

Then "order" is defined in negative terms: F

> ... the formal expression of any decision of a civil court which is not a decree.

The issue for determination here is whether or not the ruling of Rubama, J. G conclusively determined the rights of the parties with regard to any of the matters in controversy in the dispute either preliminarily or finally.

To be in a position to make that determination I have to find out what were the matters in controversy. H

The applicant is the plaintiff before the High Court. Under a Reseller Licence Agreement the applicant possessed the University Service Station and ran the Petrol Station as well as a Mini Super Market. The respondent demanded in writing, giving 29 days, that the premises be handed back to him alleging certain breaches. So the applicant filed a suit I praying for two substantial orders:

1992 TLR p192

> A (a) A declaratory order be issued to the effect that there is no subsisting breach of the Reseller Licence Agreement to warrant termination.

(b) The Reseller Licence Agreement should subsist until there is a current or a subsisting breach. B

This is why the applicant applied for a temporary injunction be maintain the status quo; keeping the premises.

The respondent, on the other hand, filed his written statement of defence and prayed for, inter alia, C

(ii) that the plaintiff immediately hands over the B.P. University Service Station."

Thus possession of the suit premises is one of the matters in controversy as was D properly contended by Mr. Mwajasho. Now, possession had been with the applicant under the Reseller Licence Agreement. The effect of the ruling of Rubama, J. was to give back possession to the respondent. Can that be said to conclusively determine the E rights of the parties with respect of the issue of possession.

The conclusive determination of the rights of the parties is from the point of view of the court formally expressing the adjudication. That is according to the definition of decree in Section 3. Now, can Rubama, J. be said to have had that plaint of view? F

Rubama, J. said this:

Mr. Mwajasho ... and Mr. Mkatte ... elaborated on their positions. they were extensive G detailed and of extreme usefulness to the court. I do not, however, intend to go into them;. they greatly go into the merits of the main suit whose determination would have to wait the finalization of the pleadings and naturally the hearing of the case. To go deep into the H advanced conflicting submissions would buy and large amount to prejudging the case. Yet I have to make a ruling on the application. In the light of the material before me, I find myself unable to grant the application by the applicant." (emphasis mine). I

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RAMADHANI JA

The learned judge decided not to grant the application and therefore rendered A possession of the suit premises to the respondent "in the light of material before" him. I ask, what material? The learned judge has given the answer. It consisted of the submissions of the learned advocates which were "extensive, detailed... greatly go into the merits of the main suit". the learned judge was wary not to go deep into that B material lest he prejudged the case. Yet that was the material "of extreme usefulness to the court" which made him refuse to grant the application and in effect allowed the respondent's prayer "that the plaintiff immediately hands over" the suit premises. Thus from the material before him, which according to the learned judge determines the C case, he could not avoid to hand back possession to the respondent even before the complete disposal of the suit.

In my opinion, the ruling by Rubama, J. is a preliminary decree. Therefore no leave to appeal is required.

No, I turn to whether or not injunction is to be granted. D

As correctly argued by Mr. Mwajasho the dispute, if any, is over payment for petrol supplied. But the suit premises were also used as Mini Super Market which has nothing to do with the payments for petrol. Then, even for the usage of the premises as a Petrol Station, untold hardship

is brought to bear on the innocent public particularly in view E of the fact that there are no alternative services rendered within the vicinity. Above all, as submitted buy Mr. Mwajasho, the parties continued doing business from the date the suit was filed in the High Court (7/5/91) to the date the respondent locked up the premises (11/7/92). Business worth shs.1,087,075/80 was transacted on 26/3/92 F according to Annexture B to the affidavit sworn by the operator of the applicant which was not denied by the respondent.

For the above reasons I am of the opinion that injunction should be granted and that the premises should immediately be restored to the applicant. I so order. G

The application for injunction pending appeal is allowed with costs.

H Appeal allowed.

1992 TLR p194

A

[zRPz]REPUBLIC v DAMAS COSMAS NILAHI 1992 TLR 194 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Bahati J

10 August, 1992

Flynote

Criminal Practice and Procedure - Appeal - State Attorney withdraws appeal without B express authority from D.P.P. - D.P.P. applies to restore appeal - Whether Court functus officio and with what effect.

-Headnote

A state Attorney who was instructed to go to Court and attend an appeal, without C authority given by the D.P.P. withdrew the appeal from court. The D.P.P. applied to have the appeal restored. It was considered whether the D.P.P. was duly represented in Court and whether the Court became functus officio.

Held: (i) I have no hesitation in holding that the D.P.P. was duly represented in the D appeal and that the D.P.P. withdrew the appeal;

(ii) although this court is functus officio, it has inherent jurisdiction to declare the withdrawal a nullity and to restore the appeal; E

(iii) the withdrawal could only be revised if there was a genuine mistake or fraud;

(iv) there being no mistake or fraud the withdrawal was in order and cannot be revised. F

Case Information

Application dismissed.

Mr. Mallaba for the applicant

Dr. Lamwai for the respondent. G

[zJDz]Judgment

Bahati, J.: This is an application by the DPP for the restoration of the appeal in this case which was withdrawn by Mr. Mwengela a State Attorney, on 14/10/91. The application is supported by an affidavit of Mr. Teemba, a Principal State Attorney in the Attorney General's Chambers. H
The affidavit avers that Mr. Teemba's duties as a Principal State Attorney include assigning duties to State Attorneys in the DPP's Department. It goes on to aver that on 14/10/91 Mr. Teemba instructed Mr. Abdul Mwengela a State Attorney to go to Court and attend an appeal No. 123/90 filed by the DPP against Damas Cosmas Nilahi. Mr. I Teemba never gave Mr. Mwengela the

instructions or authority to go and withdraw the appeal from court on that day. Mr. A Teemba learnt subsequently from the Commissioner of Customs that the appeal had been withdrawn from the Court. On 7/11/91 Mr. Teemba and the DPP summoned Mr. Mwengela who admitted having acted contrary to Mr. Teemba's instructions. Mr. B Mwengela admitted having withdrawn the appeal on his own authority and withhelding that fact later. Mr. Mwengela under normal circumstances ought to have reported back to the DPP or to Mr. Teemba what had transpired in court. The appeal according to Mr. Teemba has overwhelming chances of success and is of great public interest. He concluded that justice will only be met (done) to both parties if the appeal is restored. C
In chambers, Mr. Malaba, learned State Attorney reiterated what is contained in the affidavit of Mr. Teemba. He said that Mr. Teemba gave Mr. Mwengela instructions to proceed with the appeal and not to withdraw it. He submitted that by applying to D withdraw the appeal Mr. Mwengela was acting contrary to the express instructions he had been given and that it was wrong for him to purport to act for the DPP. He referred the Court to section 377 of the Criminal Procedure Act which defines the DPP to include any officer subordinate to the DPP ..... in accordance with his general or E special instructions. He stated that if a State Attorney has special instructions of the DPP in relation to a particular matter, he will be acting contrary to the DPP's authority if he does not comply with the DPP's instructions. He submitted that Mr. Mwengela admitted to have noted contrary to the instructions of the DPP and that after the F withdrawal of the appeal, he withheld information to that effect from the DPP.
In reply, Dr. Lamwai, learned counsel for the respondent, submitted that the main issue was to what extent is a State Attorney presumed to be able to bind the DPP in what he does in court. He conceded that Mr. Mwengela was a junior State Attorney and he G raised 2 fundamental questions namely: (1) Under what law can the High Court revise its order entered on application of one of the parties to the proceedings. The other question was not mentioned by Dr. Lamwai who only dealt at length with the only question H raised. He submitted that there is no law which empowers this court to restore an appeal which has been withdrawn. He referred to the Criminal Procedure Act and commented that it talks of restoration of a dismissed appeal and not a withdrawn appeal. He also submitted that the Court cannot use its inherent powers and that even I the chamber summons does not seek inherent powers. He

BAHATI J
said further that inherent powers are used to stop an abuse of process of court which A was not the case here. He also submitted that an order granted on application for withdrawal of an appeal is a final order and that the court was functus officio and unable to reverse its decision.
Dr. Lamwai next argued the substance of the application on the basis of the affidavit. B He said that Mr. Teemba in his affidavit was conceding that Mr. Mwengela was duly instructed to conduct the appeal which meant that he could either argue the appeal or withdraw it. He submitted that it cannot be said that Mr. Mwengela did not conduct the appeal on behalf of the D.P.P. He said that in the absence of specific instructions to C the contrary the Court should conclude that a State Attorney has power to proceed with an appeal or terminate it. He said that section 377 of the CPA was irrelevant because it was only a definition section. He submitted that there cannot be any dispute that Mr. D Mwengela had general or special instructions to appear in the appeal and that the DPP was therefore in court, and the DPP decided to withdraw the appeal. He argued that matters of instructions in the DPP's office are internal arrangement and that the Court cannot act on such internal arrangements as if they were law. E
With regard to paragraph 7 of the affidavit, Dr. Lamwai submitted that there was no evidence that Mr. Mwengela acted contrary to instructions as nothing was produced to show what the instructions were. He said that only Mr. Mwengela could solve this riddle F by swearing or an affidavit stating the nature of instructions and admitting going contrary to such instructions. He said further that to hold otherwise would be putting Mr. Mwengela on trial without being heard. He prayed that paragraphs 7,8 and 9 be disregarded.
With regard to the question of overwhelming chances of success, Dr. Lamwai said G that Mr. Teemba wanted to convince the Court to open a Pandora's box in that he wants the Court to hold that when one State Attorney find that there is no evidence and the other finds evidence, then the case should be reopen. He submitted further that the H application amounted to putting the respondent in double jeopardy because he was acquitted in 1990 and the appeal was withdrawn in 1991 and it was now in July 1992. He referred to the record of the court which shows that on 25/9/91 an adjournment was sought by the DPP to consider withdrawal of the appeal. He concluded that there was I no shoddy deal in this matter and that more suspicion could not help in the administration of justice.
1992 TLR p197
BAHATI J
In reply to the above, Mr. Malaba submitted that there was no law requiring every A application to be supported by the law under which it is made and that the Court had inherent powers to deal with any legal matter in issue for the interests of justice.

With regard to the issue of "functus officio", Mr. Mallaba submitted that this applied only where a matter had been heard on merits. With regards to the affidavit, he said B that the affidavit is presumed to contain the truth until the contrary is proved by a counter affidavit or in cross-examination. Dr. Lamwai intervened by stating that the respondent filed a counter-affidavit. Indeed such counter affidavit is there. C

On the question of section 377 of the CPA Mr. Malaba reiterated that once a State Attorney fails to comply with specific instructions of the DPP then he cannot be said to be acting for the DPP and that once the DPP has directed a State Attorney to issue instructions on his behalf then those instructions are of the DPP. He concluded that if D a State Attorney decided to go contrary to specific instructions then there is no DPP in court.

On the issue of 25/9/91, he said that it was Mr. Mwengela who appeared on that day and he never briefed the DPP of his intention to withdraw the appeal. E

The issues to be determined in this application are interesting and may be unprecedented. Here is the DPP who has withdrawn the appeal through his State Attorney asking that the order for withdrawal be revised and the appeal restored because the State Attorney in question did not have instructions from him to withdraw F the appeal. In paragraph 4 of his affidavit, Mr. Teemba Principal State Attorney is saying, "I never gave him the instruction or authority to go and withdraw the appeal from court on that day." Does a State Attorney require instructions or authority to withdraw an appeal (or a case for that matter) in order for his withdrawal to be effective in law G when acted upon by the Court by making the appeal withdrawn? Mind you, Mr. Teemba is not saying, "I gave him instructions not to withdraw the appeal." From paragraph 4 of the affidavit it is clear that there were no instructions to withdraw the appeal or not to withdraw the appeal. From the reading of paragraph 3 of the I affidavit, it is also clear that the only instructions there were to Mr. Mwengela from Mr. Teemba were to go to court and attend an appeal No. 123/90 which is the case in question; there were therefore no specific instructions not to withdraw the appeal. Therefore, with respect to Mr. Mallaba, learned State Attorney, his submission to the effect that Mr. Teemba instructed Mr. Mwengela

not to withdraw the appeal is not supported by anything in the affidavit. The A instructions were to go to Court and attend an appeal (the appeal No.1 23/90. Whereas in paragraph 4 of the affidavit Mr. Teemba avers that he never gave Mr. Mwengela instructions or authority to go and withdraw the appeal from the court on that day, it is B also correct to say that Mr. Teemba never gave instructions not to withdraw the appeal to Mr. Mwengela. On the basis of the above, it cannot be said, as Mr. Malaba has submitted, that Mr. Mwengela was acting contrary to express instructions which he has been given and hence not representing the DPP. The fact that Mr. Mwengela did not C report to the DPP that he had withdrawn the appeal cannot alter anything, because, as submitted by Dr. Lamwai, that would be internal arrangements in the DPP's office. I have no hesitation in holding that the DPP was duly represented in the appeal and that the DPP withdrew the appeal. I also agree with Dr. Lamwai that it would be wrong for D this court to hold that Mr. Mwengela admitted to have acted contrary to instructions of Mr. Teemba without giving Mr. Mwengela the right to be heard because such a finding would be prejudicial to him. Paragraphs 7 and 8 of the affidavit of Mr. Teemba are charging Mr. Mwengela with a serious infraction of regulations and as such these E paragraphs are controversial. This court can only act on them if Mr. Mwengela himself confirmed the truth of these paragraphs. Indeed if these paragraphs are true then he would have expected either an admission in writing

or an affidavit from Mr. Mwengela himself. Short of that I am not prepared to accept them at their face value. This court F has the duty to scrutinize what is in the affidavit or any evidence and it cannot take for granted or presume that an affidavit is true even if there is nothing to challenge it in writing.

There is the point raised by Dr. Lamwai concerning the power of the court to revise an G order entered in circumstances such as the present. Dr. Lamwai has argued that the court is functus officio in such a situation. Mr. Mallaba on the other hand has argued that the court has inherent powers to entertain any matter when the interests of justice so require and that the court become functus officio only when a matter has been determined on merits. H

After diligent search for a case in point, I have come upon a Ugandan case of Scrisito Luyombya v Uganda [1965] EA 618. This case concerned a notice of abandonment of an appeal given under section 328 A(3) of the Uganda Criminal Procedure Code. The appellant made an application for leave to withdraw the notice of abandonment I although there were no provisions in the Criminal

Procedure Code to that effect. The Chief Justice dismissed the application as A incompetent on the ground that the appeal was already deemed to have been dismissed by operation of law under S.328A (3) and the Court was functus officio. On appeal to the Court of Appeal for the East Africa it was held that:

B (i) the appellate courts in Uganda have an inherent jurisdiction to allow an abandoned appeal to be restored, if it can be shown that the notice of abandonment was given by mistake or fraud such as to involve a possible failure of justice in the event of the appeal not being restored; C

(ii) an application to withdraw notice of abandonment is not necessarily an abuse of legal process, because there may be cases in which, although functus officio, an appellate D tribunal will use its inherent jurisdiction to declare such notice a nullity, and allow the appeal to be restored.

The matter was remitted to the High Court to hear the application on its merits. E

Since the above case is from Uganda, it is only of persuasive authority although it is a Court of Appeal decision. However, I entirely agree with the decision arrived at which can be applied even in the case before me. Going by the above cited case, I hold that although this court is functus officio, it has inherent jurisdiction to declare the F withdrawal a nullity and to restore the appeal. I cannot see why the position in Tanzania should be different from that in Uganda on this issue.

I will therefore examine now whether there is any justification for declaring the application for withdrawal or the withdrawal itself a nullity in this case. G

One thing is clear in this case, and it is that the withdrawal of the appeal by the State Attorney Mr. Mwengela was not expected by the DPP nor was it wanted or desired by the DPP. the withdrawal was certainly not by mistake. Was it fraudulent? There is no H evidence that it was fraudulent. I have already ruled above that the controversial parts of the affidavit which purport

to charge Mr. Mwengela with an infraction of the regulations cannot be accepted without more because that would amount to condemning Mr. Mwengela without giving him a hearing. Therefore we go to the next and possible the I last question in this matter which is whether
1992 TLR p200
Mr. Mwengela had power to withdraw the appeal from the court. My answer to this A question is in the affirmative because Mr. Mwengela as State Attorney duly representing the DPP had power to do what was within his power when he appeared in the Court. The withdrawal of the appeal was a matter within his powers. That the DPP did not like B the step taken buy Mr. Mwengela cannot mean that Mr. Mwengela had no such power.
It follows therefore that the withdrawal was in order and the appeal is deemed to have been duly dismissed. It could only be revised if there was a genuine mistake or fraud which is not the case here. C
I agree with Dr. Lamwai that this application should be dismissed. I dismiss it accordingly.
D Appeal dismissed.
1992 TLR p200
E
[zRPz]VINCENT SONFO MAPUNDA v REPUBLIC 1992 TLR 200 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Makame JJA, Kisanga JJA, Mapigano Ag JA

14 August, 1992 F
Flynote
Criminal Law - Murder - Cause of death.
-Headnote
The appellant was convicted of the offence of murder by the High Court and sentenced G to suffer death. It was alleged that the appellant had given medicine to the deceased. The trial court found that the appellant had in fact given medicine to the deceased. It was in evidence that the medicine given to the deceased, if taken in large quantities, could lead to death. It was argued on appeal that there was no evidence to establish the quantity of the medicine given to the deceased and therefore that the prosecution had H failed to discharge that burden.
Held: (i) The duty of the prosecution consisted in showing that the medicinal or toxic I substance taken by the deceased was the cause of the death. In order to discharge that burden it was essential for
1992 TLR p201
MAKAME JJA, KISANGA JJA, MAPIGANO Ag.JA
the prosecution to adduce evidence to establish two things, namely (a) the quantities A and strength of the substances that were found in the dead body; and (b) the known minimum doses of those substances that are necessary to kill;

(ii) there was no sufficient evidence on which the High Court could properly have based a conviction for the offence charged or for any other lesser offence. B

Case Information

Appeal allowed.

Kameja, for the appellant C

Munisi, for the respondent

[zJDz]Judgment

Makame and Kisanga, JJ.A. and Mapigano, Ag. J.A.: A woman called Constansia Matembo died at her home in Tingi Village, Mbinga District, on the 13th of July, 1989 at dawn. The appellant Vincent Sowo Mapunda was later brought before D the High Court charged with the murder of the woman. In a judgment dated June 19, 1991 Kazimoto, J. found the appellant guilty of the offence and convicted him accordingly and then sentenced him to suffer death by hanging. The appellant has come to us with a four-ground memorandum, in a bid to have the conviction quashed. He is E represented by Mr. Kameja, learned advocate, while the respondent Republic is represented by Miss Munisi, learned State Attorney.

The starting point in this case is the death of one Raymond Mapunda who was the F brother of the appellant and the husband of the deceased Constansia. Raymond predeceased Constansia, having died back in 1986. It was the prosecution's allegation that the appellant had, subsequent to the death of Raymond, made proposals to Constansia to "inherit" her and that his proposals drew a negative. This allegation was G based on the evidence of P.W.1 Sikolastika Mapunda and P.W.2 Salvius Mapunda who are, respectively, the daughter and the son of the deceased Raymond and Constansia, that the deceased Constansia had narrated to them such a story a few days before she died. If their evidence is to be believed, the appellant had also warned H Constansia that evil would befall her if she refused to become his wife. At the trial the appellant denied the truth of that story, and it seems to us that these allegations of proposals, rebuff and threats were not given much consideration by the trial judge. I

1992 TLR p202

MAKAME JJA, KISANGA JJA, MAPIGANO Ag.JA

Constansia fell sick in 1989 and the objective symptom of her illness was the swelling A of the body. The treatment she received at Tingi dispensary did not cure the illness and, understandably, her condition became a matter of great concern to P.W.1 and P.W.2. Again according to these two witnesses, Constansia had narrated to them that the appellant had told her matter-of-factly that she would not recover her health and she B would indeed die because she had cultivated at a place where he had buried his medicine called "Kipalapala". It was admitted by the appellant at the trial that he had admonished Constansia in those terms. It was the appellant's contention that C Constansia had broken a heathen taboo by cultivating at a forbidden place.

There can be no doubt that eventually P.W.1 and P.W.2 came to suspect or believe that Constansia had been bewitched by the appellant, and it would appear that these feelings peaked when they were endorsed by a fortune-teller whom P.W.2 had D consulted. So on 10/7/89 a meeting was held to deliberate on the plight of Constansia, and P.W.1, P.W.2, Constansia as well

as the appellant, attended the meeting. It was common ground that at that meeting the appellant owned up to the admonition. P.W.1 and P.W.2 then decided to take the matter to the Chairman of the Village, P.W.3 E Vincent Kawonga.

P.W.3 convened a meeting at his office on 12/7/89 to discuss the matter. At that meeting, which Constansia did not attend, the appellant again owned up to the admonition. He however assured P.W.3 that he had an antidote for Constansia's F affliction and promised to restore her to health within a period of three days. The meeting ended on that note and the appellant as well as P.W.1 and P.W.3 walked away to return to the home of Constansia.

It was not in dispute that the appellant set out from the office at a fast pace, taking a G different route, a short one. It was admitted by the appellant that when he reached the home of Constansia he proceeded to furnish some medicines to her. It was further admitted by him that when P.W.1 and P.W.2 came back to the place he had already left. Bearing in mind that it was just a matter of twenty minutes' ordinary walk from the H office, it must be accepted as a fact that the medicines were furnished to Constansia within a very brief space of time.

Constansia disclosed to P.W.1 and P.W.2 that the appellant had given her one medicine to take internally, and that she had done so; and another medicine to bathe with. The I two witnesses upbraided her for having swallowed the medicine in their absence.

1992 TLR p203

MAKAME JJA, KISANGA JJA, MAPIGANO Ag.JA

In the hours that followed, Constansia's condition changed for the worse, and the A appellant was not to be seen around. In his testimony he stated that he was somewhere drinking. Around 5 a.m. on the morrow Constansia passed away. On suspicion of foul play the matter was reported to the police and the appellant was taken into custody on 14/7/89. On suspicion that the appellant had given poison to Constansia the police B seized three kinds of medicine from him, two of them in powder form and the third being herbal leaves.

The appellant denied to have given Constansia any medicine to take internally. He stated that what he gave her was the herbal leaves for external use. C

The guarded autopsy opinion, as stated in exhibit P1, was that Constansia possibly died of "poisoning with local medicine". Specimen of the liver and lung tissues as well as stomach contents of the deceased were taken and dispatched to the Government Chemist along with the medicines that were seized from 2nd appellant, for further D investigation. The report of the Chemist, exhibit P2, reads that all the medicines as well as the liver tissue contained organo sulphur and alkaloids; that organo sulphur is frequently used to prepare pesticides and is harmful if consumed in large quantity; and E that alkaloids are poisons and harmful if swallowed in large quantity.

As mentioned above, there was no dispute that the appellant supplied medicine to the deceased, and we find, as did the trial judge, that it was one of those seized by the police and later analysed by the Chemist. Those medicines contained poisonous F properties and in answer to ground 3 of the appeal, we are also prepared to go along with the finding of the trial judge that the appellant was aware of their toxic properties.

The finding of the trial judge was also that the appellant did actually give medicine to the deceased for internal use and that the substance was swallowed by her. The evidence G relied on by the learned judge was the dying declaration, i.e. what the deceased had allegedly related to P.W.1 and P.W.2 when the two witnesses returned from the office of P.W.3. This finding is the subject-matter of ground 2 of the appeal. H

Mr. Kameja, who ably argued the appeal and incisively said about all that could be said on behalf of the appellant, submitted that the trial judge should have felt unsafe to come to that finding in view of the fact that there was only one's word against the other's. Miss Munisi came round to agree with Mr. Kameja, and properly so, as we consider I that P.W.1 and P.W.2 were evidently witnesses

whose evidence should have been approached with circumspection, for the chances A are that they had twisted or embellished the words of the deceased.

However, if one is to take the trial judge's view of the matter, the question that would then arise is whether the judge was right when he went on to find that the death of the B deceased was caused by poison. Ground 1 of the appeal is directed against that finding.

As shown already, it is plain that the autopsy opinion was just prima facie and the only other material piece of evidence relating to this point was the Chemist's report exhibit P2. The point taken by Mr. Kameja is that exhibit P2 did not subscribe much to the C uncrystallized autopsy opinion and that the prosecution evidence was thus inconclusive of the precise cause of death.

That is a tenable point and we respectfully think that the trial judge would have come to a different conclusion if he had looked at exhibit P2 critically. The reason is simple. D The charge against the appellant was that he had killed the deceased by causing her to swallow poison, and the appellant denied the truth of that charge. The duty of the prosecution consisted, therefore, in showing that the medicinal or toxic substance so taken by the deceased was the cause of death. And we entirely agree with Mr. E Kameja that in order to discharge that burden it was essential for the prosecution to adduce evidence to establish two things, namely (a) the quantities and strength of the substances that were found in the dead body; and (b) the known minimum doses of those substances that are necessary to kill. For as Taylors Principles and Practice of F Medical Jurisprudence, Vol.II, 11th edition, elucidates at page 203, a poison in a small dose may be a medicine, just as a medicine like aspirin i.e. in a large toxic dose, a poison.

There is no such evidence in this case. What we have here is merely that organo G sulphur and alkaloids were detected in the materials submitted to the Chemist for analysis and that such substances are capable of acting injuriously on the body if taken in large doses, and we consider that this is where the greatest weakness in the prosecution case lay.

In view of the findings we have made above, it becomes unnecessary for us to deal H with ground 4 of the appeal which has reference to the question of malice aforethought, and we sustain the wherefore-contention set out in ground 5, which is conceded by Miss Munisi, that there was no sufficient evidence on which the High Court could properly have based a conviction for the offence charged or for any other lesser I offence.

1992 TLR p205
We accordingly allow the appeal and set aside the conviction and the sentence, and A we order that the appellant be set at liberty forthwith if he is not otherwise lawfully detained.
B Appeal allowed.
1992 TLR p205
C
[zRPz]FARAH MOHAMED v FATUMA ABDALLAH 1992 TLR 205 (HC)

Court High Court of Tanzania - Arusha
Judge Mrosso J

18 August, 1992
Flynote
Land law - Disposition of land - Registration of documents purporting to transfer D right/title to land.
Land law - Inheritance - Inheritance of a right of occupancy - Requisites.
Evidence - Admissibility - Of secondary evidence. E
-Headnote
The original owner of disputed property had died intestate, leaving the property in the hands of caretaker. The caretaker who did not have letters of administration sold the property to another person upon whose death, the property was again sold to the respondent. This was a suit by respondent (then plaintiff) against the Appellant, (the F original defendant) for trespass occasioning loss.
The trial court found for the respondent that the disputed land belonged to her and the appellant was a trespasser. The appellant appeals to High Court. G
Held: (i) A right of occupancy or an offer of a right of occupancy cannot be inherited by the mere possession of documents of title;
(ii) he who doesn't have legal title to land cannot pass good title over the same to another;
H (iii) documents purporting to transfer ownership of a right of occupancy must be registered otherwise those documents are invalid and ineffectual;
(iv) transfer of a right of occupancy without consent of the President is ineffective and unenforceable. I
Appeal allowed.
1992 TLR p206
MROSSO J
Case Information
Minde for Zeffer Ali, for appellant A
Shayo for Jonathan, for respondent
[zJDz]Judgment

Mrosso, J.: The respondent, Fatuma Abdallah, was the successful party in a suit she had filed in the Court of the Resident Magistrate at Moshi against the appellant Farah B Mohamed. The suit was in respect of Plot No. 15, situate at Sanya Chini, in an area commonly known as Somali Minor Settlement, in Hai District. The respondent, then plaintiff, had alleged that the plot belonged to her and that the appellant, then defendant, had trespassed onto it and in doing so, caused the respondent to suffer a loss of a C finger millet crop from which she would have earned shillings 352,000/=. She sought a declaration that the appellant was a trespasser, damages in the sum of shillings 200,000/=, an eviction order against the appellant and costs.

The trial court found that the plot belonged to her and, therefore, the appellant was a D trespasser. It is not, however, clear from the decree if an eviction order was granted as prayed. The prayer for damages was refused, and there has not been any cross-appeal on that. The appellant was dissatisfied with the judgment and decree of the trial court E and has appealed to this court. Mr. Zaffer Ali, learned advocate who prosecuted the defence for the appellant in the trial court, has filed eight grounds of appeal to this court and, with the leave of the court, has filed Written arguments. The respondent who was duly served did not appear at the hearing of the appeal. She wrote a letter seeking F adjournment but for the reasons given in a ruling, the application for adjournment of the hearing was refused.

Before I deal with the grounds of appeal, let me attempt a summary of the facts, as I understand them. One Abdallah Farah obtained an offer of a Right of Occupancy G over the suit land on 1st July, 1954, for a term of 99 years. The land commonly known as Plot No.15, measured 23.5 acres. Apparently Abdallah Farah did not live on the plot nor was there clear evidence if he developed it except by building a house on it. Subsequently he died in a year which was given in the evidence by the appellant as H 1957. Even so, up to the time the suit came for trial, he remained the registered owner of the plot, according to the evidence of one Tadeo Simon Mwakilema (D.W.3), who was an Assistant Land Registry Officer.

After Abdallah Farah's death a close relative, allegedly an aunt, one Gurman Mohamed, I took possessions of the plot. Some witnesses said she inherited it. She does not appear to have applied

for any letters of administration nor appointed administrator of the estate of Abdallah A Farah.

According to the respondent's case, Gurman Mohamed sold the suit plot to one Awadh Abdi and when Awadh Abdi died his wife Hadija Awadh (P.W.3) applied for and was granted letters of administration in respect of the estate of her deceased husband. By a B written agreement, a copy of which was tendered in evidence despite objection, the suit land was sold by Hadija to the respondent and one Oreson Shuma jointly, that was in 1979. In the following year Shuma surrendered his half share to the respondent who became the sole owner until in 1985 when the appellant allegedly trespassed onto it. C

The appellant had a different story to tell. His case was that after both Adballah Farah and his aunt Gurman Mohamed died he got the plot in 1971 "through relationship", to use his own words, whatever exactly that meant. The plot has been in his possession D ever since. He also had Abdallah Farah's title deed in his possession and he tendered a certified copy of it in

evidence. He was paying the land rent in the name of Abdallah Farah. He therefore denied the respondent's complaint that he was a trespasser on that plot.

The appellant contended that Awadh Mohamed (sic) (Abdi?) bought only a house on E the disputed plot and not the plot itself. The copy of Sale Agreement had been tendered as exhibit P.2 and it specifically mentioned the plot and not a house on the plot.

The appellant did not claim ownership of the suit plot. To quote his words, he said of the suit plot: F

> I do not possess the land. It is not my property. I'm an agent.

He did not disclose whose agent he was. He appeared to say, however, that he was G hoping he would eventually own it - "I'm paying the rent so that I would possess the Farah's plot; It being no body's". The appellant in fact owned an adjacent plot -No.14.

From the appellant's own words, he had no ownership claims over the suit plot. He said he had possession of it only as an agent (of a principal who was never disclosed). H This assertion is so vague as to be meaningless and unhelpful to himself and to the court. The court cannot be expected to give serious consideration to it. One could only say, as indeed the appellant said himself, that since he had Abdallah Farah's title documents, he paid the land rent with hope that some day he might somehow acquire ownership of I the plot.

1992 TLR p208

MROSSO J

On the other hand, the respondent's story finds some support from appellant's own A witness Mohamed Ahmed (D.W.3 (sic). He should have been numbered as D.W.4). This witness confirmed that Awadh Abdi had possession of the plot after the death of Gurman Mohamed. He also confirmed that Hadija Awadh transacted over the plot B and the witness signed a document evidencing Hadija's transaction over the plot. He must have been referring to Exh. P.2 which, when given to him in court, he read and said the contents were correct. Exhibit P.2 purported to be a sale agreement regarding the plot whereby the respondent and Orison Shuma were supposed to have bought it. C

It seems plain to me that the appellant's contention that Awadh Abdi had bought only a house on the plot and not the plot itself is untenable on the evidence and for the obvious reason that a house is part of the land on which it stands and it could not be sold D separately from the land quicquid plantatur solo, solo cedit. The fact that the appellant had Abdallah Farah's title documents in his possession did not give him any title over the suit plot because he never applied for nor was he granted any title or interest over it. But did the respondent herself have any proprietary rights over the disputed plot? E

It may be convenient to start with Gurman Mohamed. It was suggested by the respondent that she inherited the suit plot from Abdallah Farah. Assuming that was true, and there was hardly any evidence to sustain that assumption, it cannot seriously be argued that she obtained any legal title to the plot. A right of occupancy, or even an F offer of a right of occupancy for that matter, is not inherited like cattle in a boma. Even if it were, there was not a shred of evidence that any procedure under Somali custom for inheriting the property of a deceased Somali was

followed to vest the plot in Gurman G Mohamed. At best she was only a kind of caretaker for the plot.

If Gurman Mohamed had no legal title to the plot, she could not pass any to Awadh Abdi, who allegedly bought it from her. The same thing would be said of Hadija Awadh, the wife of Awadh Abdi, who after the demise of Awadh Abdi, sold the plot to the H respondent and one Orison Shuma, whether or not there was a properly executed sale agreement.

But even if it were assumed that Gurman Mohamed had a legal title to the plot, did she effectively pass it on to Awadh Abdi?

During the trial of the suit in the lower court a photostat copy of a document I evidencing sale of plot number 15 by Gurman

Mohamed to Amed Abdi (who I take is the same person as Awadh Abdi) was A tendered in evidence as exhibit P.2. There was some controversy on whether it was adequately stamped. I do not find it necessary to go into that. A more important question is whether the document was admissible as evidence. Mr. Zaffer Ali objected to its admission but he was overruled. B

There is no doubt Ex. P.2 was secondary evidence in terms of section 65(b) of the evidence Act, 1967. The respondent said the original of the document had either been stolen or was lost or misplaced by her children. The trial magistrate appears to have accepted that explanation. While one might say the magistrate was perhaps lenient C yet, it did not, I think, amount to a misdirection or error. It was therefore admitted presumably under section 67(l)(c) that is to say, the provision that secondary evidence is admissible:

> when the original has been destroyed or lost, ... D

Mr. Zaffer Alli objected to the admissibility of that document on another ground. Since the respondent was relying on that document (and others to be discussed later), it should have been annexed to the plaint, which was not done. Mr. Jonathan for the E respondent argued, inter alia, that the appellant had not been taken by surprise and that the respondent had filed the plaint in person and was ignorant of the technical requirement under Order 7 rule 14 of the Civil Procedure Code, 1966. The trial magistrate also agreed with Mr. Jonathan. F

Under Rule 18(l) of the same Order 7 of the Civil Procedure Code, 1966 the court is empowered to grant leave to a plaintiff to tender in evidence a document which ought to have been filed together with the plaint but was not. It has not been argued that the trial magistrate exercised his discretion under Rule 18(l) wrongly. G

Of even greater importance is the question whether Exh. P.2 passed any title over the plot to Awadh Abdi. If that document purported to transfer the ownership of the plot, then, under section 8(1) (a) of the Registration of Documents Ordinance, Cap.117, its registration was compulsory. In the provision cited it is stated: H

> S.8(l). The registration of the following documents if executed or made after the commencement of this Ordinance is compulsory - I

A (a) Non-testamentary documents, including decrees of any court or awards, which purport to or operate to create, confer, declare, limit, assign, transfer or extinguish any right, title or interest whether vested or contingent, to, in, over land, ... B

There was no suggestion that document had been registered under Cap. 117. That being the position the document was invalid and ineffectual. Section 9 of Cap. .... says:

C 9. No document of which the registration is compulsory shall be effectual to pass any land or any interest therein or render such land liable as security for the payment of money, or be received as evidence of any dealing affecting such land unless and until it has been registered. D

Similarly, under Section 41(2) of the Land Registration Ordinance, Cap.334 a disposition of land which has not been registered under the ordinance is ineffectual to transfer any title or right over it.

The purported transfer of the land by way of sale had another serious disability. No E consent of the President or the Commissioner for Lands or other public officer to whom the powers of the President may have been delegated, was obtained and therefore, the transfer was ineffective and unenforceable.

An offer of a Right of Occupancy which is usually given in respect of unsurveyed plots F is as good as a right of occupancy. Under regulation 3(l) of the Land Regulations, 1948 a disposition of a Right of Occupancy is inoperative, even if in writing, unless it is approved by the President (which term includes officers to whom the President has delegated his powers to consent) - see Fazal Kassam (Mills) Ltd. v Lawrenson and G Matzen(1957) E.A. 101 (C.A.).

As will be recalled, the plot purportedly passed from Awadh Abdi to the respondent and another when Hadija Awadh, the wife of Awadh, who had been granted by the High Court Letters of Administration in respect of the estate of her late husband, sold H it. An uncertified copy of a supposed sale agreement was tendered in evidence as Exhibit P.1, again notwithstanding objection by Mr. Zaffer Ali, who was overruled by the trial magistrate.

What I have said in connection with the sale of the plot by Gurman Mohamed and Exhibit P.2 substantially applies to the sale of the plot by Hadija Awadh to the I respondent. There was no valid

transfer of any title to the respondent for the same reasons as already explained A above. The document, Exh.P.1, which did not meet the requirements of section 65 of the Evidence Act, 1967 was not secondary evidence and should not have been admitted into evidence. It was not in any case registered under section ... of the Registration of documents Ordinance, Cap.117 and Concept of the President for the B transfer under Regulation 3 of the 1948 Land Regulations, was not obtained. So, no title or right over the plot was ever transferred to the respondent. It follows, she had no enforceable claim over Plot No. 15 in dispute. Her claims ought to have been dismissed. The title over the plot has not, to date, changed hands. C

For the above reasons this appeal is allowed with costs to be taxed both in this court and in the court below.

D Appeal allowed.

1992 TLR p211
E
[zRPz]IBRAHIM SHAHA v MTUMWA SHAHA 1992 TLR 211 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Makame JJA, Omar JJA, Mfalila JJA

18th August, 1992
Flynote
Islamic Law - Wakf - Whether a valid wakf created. F
-Headnote
The respondent and her brother, one Khamisi, inherited a house when their sister died childless. The respondent and Khamisi decided to create a wakf and dedicate the house to a mosque. There was an authentic document to that effect. When Khamisi died the G appellant, administrator of Khamisi's estate, wanted to include Khamisi's portion of the house in dispute in Khamisi's estate but the respondent resisted arguing that a wakf had been created over the house. It was argued that although there was an authentic document evidencing creation of wakf no valid wakf had been created. H
Held: Since there was no evidence that Khamisi was paying rent to the mosque the property had not been conclusively dedicated as wakf. I
Case Information
Appeal allowed.
19902 TLR p212
MAKAME JJA, OMAR JJA, MFALILA JJA
Semzaba, for the appellant A
Mwajasho, for the respondent.
[zJDz]Judgment
Makame, Omar and Mfalila, JJ.A.: The parties are Brother and Sister. When their sister, Mwanabasi Shaha, died childless her properties were inherited by her siblings. B The present appellant got two houses and four cows, - while the respondent and a brother called Khamisi inherited a house. This property is House No. 20, Sukuma Street, Dar es Salaam, the object of a dispute which has now come to this Court on third appeal: After Khamisi's death the present appellant, the administrator of C Khamisi's estate, wanted to include Khamisi's portion of the house in dispute in Khamisi's estate, but the respondent resisted this, asserting that she and her brother, the deceased Khamisi, had created wakf over the property and dedicated it to the Rufiji Mosque in the City of Dar es Salaam. The Primary Court agreed with the respondent D that the house was wakf property but on appeal to the District Court, Ilala, (Kayombo, SDM) reversed the Primary Court decision, so in turn Mtumwa appealed to the High Court where Kazimoto, J. re-instated the decision of the Primary Court, holding that there was a valid wakf. That decision

is now appealed from by Ibrahim, advocated E for by Mr. Semzaba, learned Counsel, while Mr. Mwajasho, learned advocate, appeared for the respondent Mtumwa.

We think that all along there was no serious dispute about the authenticity of Exh. B, the document purporting to create the wakf. We think also that the intention of Khamisi F and Mtumwa to create a wakf and dedicate the house to the mosque comes out clearly and is not at all in doubt. The issue however was whether a valid wakf had been created.

There was evidence by Mtumwa that after the house had been declared to be wakf in G favour of the mosque she was paying rent to the mosque for the portion she was occupying and also passing on to the mosque the rent being paid by tenants. The learned high Court judge was right that Mtumwa's assertion on this had not been disproved but, with respect, she was only one of the intending wafiks. There was no H similar evidence regarding Khamisi. There was, that is, no evidence that he was paying rent to the mosque so it must be assumed that he continued to live in the house rent - free; and that, quite rightly, bothered the learned Senior District Magistrate. Mr. Semzaba submitted that it meant that the property had not been conclusively dedicated as wakf. Mr. Mwajasho's references to Mulla's Principles of Mohamedan Law were I quite apt with regard

1992 TLR p212

to transfer of physical possession and title. His submissions however left unanswered A the important issue of non-payment of rent by Khamisi, which rendered the purported wakf not absolute.

This appeal must succeed, however regrettable it may sound. We accordingly allow the appeal and make no order as to costs.

We note that Mtumwa is entitled to a portion of the house in her own right, having B inherited the same from Mwanabasi, and that she is also entitled to a portion of the deceased's Hamisi part of the house. According to the evidence on record Mtumwa and Ibrahim are Khamisi's heirs.

C Appeal allowed.

1992 TLR p213

D

[zRPz]JONAS NKIZE v REPUBLIC 1992 TLR 213 (HC)

Court High Court of Tanzania - Tabora
Judge Katiti J

19 August 1992 E

Flynote

Criminal Practice and Procedure - Evidence emanating from the defence - Whether safe to sustain a conviction.

Criminal Practice and Procedure - Onus of proving the charge - Whether by prosecution or the accused.

Criminal Practice and Procedure - Prima facie case - When established, and what F should a trial court do if not established - S.230 of the Criminal Procedure Act 1985.
Evidence - Of co-accused - Whether admissible - How to approach and utilize it.
-Headnote
Before the Kigoma District Court were Jonas Nkize the Appellant and two others G charged with stealing c/s 258 and 265 of the Penal Code, Cap 16. In the alternative Jonas Nkize as a third accused was charged with obtaining goods by false pretences c/s 302 of the Penal Code, Cap 16. H
The arraignment of the appellant in the said court was prompted by the second accused who implicated the appellant in his sworn defence. He called several witnesses to support his story against the appellant, the prosecution evidence having failed to touch him. Relying on the sworn evidence of the second accused as confirmed by the I witnesses he called the trial Magistrate acquitted
1992 TLR p214
KATIT J
the second and first accuseds and proceeded to convict the appellant on the second A charge on the strength of the same evidence. On appeal to the High Court;
Held: (i) While the trial Magistrate has to look at the whole evidence in answering the issue of guilt, such evidence must be there first, including evidence against the B accused, adduced by the prosecution;

(ii) the general rule in criminal prosecution that the onus of proving the charge against the accused beyond reasonable doubt lies on the prosecution, is part of our law, and forgetting or ignoring it is unforgivable, and is a peril not worth taking; C

(iii) the burden of proving the charge against the accused is on the prosecution, so that the trial Magistrate, to say he cannot depend on the prosecution evidence, is to read upside down the authorities, and if it is by design, then it is strange and unjudicial behaviour; D

(iv) the trial Court is enjoined to direct its minds to the evidence adduced by the prosecution when it has closed its case, and if it appears to the court that, the case is not made out against the accused person sufficiently to require him to make a defence, the court shall dismiss the charge and acquit the accused person; E

(v) where in joint trial, an accused goes into a witness box and gives testimony, such evidence becomes evidence for all purposes, including being evidence against his co-accused;

(vi) where the co-accused's evidence implicating the co-accused is tainted by F improper motive, such evidence should be received with caution.
Case Information
Appeal allowed.
Mr. Boaz and Mr. Osward for the Republic G
[zJDz]Judgment
Katiti, J.: Witnessing the prosecution of Jonas Nkize, the appellant, for the offence of stealing c/s 265 of the Penal Code Cap. 16, or in alternative, obtaining goods by false pretences c/s 302 of the Penal Code Cap. 16 of the Law, was Kigoma District H Court, which ultimately found the

appellant guilty, of the alternative count - obtaining goods by false pretences c/s 302 of the Penal Code Cap. 16 of the Laws, and accordingly convicted him. The appellant was sentenced to five years imprisonment, a sentence which was followed by the statutory compensation order, that the said I appellant,

1992 TLR p215

KATIT J

shall compensate the Kigoma R.T.C., the value of 100 cartons found stolen. A

The appellant aggrieved, has appealed to this Court, contending that he was unfairly convicted, as he himself was never involved, in the charged crime. The learned State Attorney Mr. Boaz, declined to support conviction, submitting, as he did, that there B was no evidence sufficient enough to sustain conviction. The evidence shall need to be scrutinized, and revisited. The genetic starting point here, is that by the way of two Kigoma RTC Internal Stock Transfer Vouchers, (ISTV) numbered, No. 7617 of 29/9/1988, and No. 624 of 17/10/1988, Exhibits P1 and P2 respectively, one C hundred, and three hundred cartons of match boxes, (Kibo brand), respectively, were taken from the RTC store, or godown, then manned by the 2nd accused. The former ISTV consignment, was purportedly issued for MANYOVU RTC retail shop, and the latter, for MWANDIGA RTC Retail shop. And it remains an undeniable fact, on the D evidence by PW.1 Aron Kimerei, the then Kigoma RTC general Manager and PW.2 B 857 DST Issa, and rightly found by the trial Magistrate, that not a single carton of match boxes, reached their assigned destinations, i.e. Manyovu RTC Retail shop, nor MWANDIGA RTC retail shop, although they were taken out of the godown. On the E allegations, that Exhibits P1 and P2, the Internal Stock Transfer Vouchers, (ISTV), had been issued by the 1st accused Boniface Mhehe, the Marketing Manager, and that the same cartons were taken out of the Kibirizi godown, whose keeper was Hem Shuba, the two were charged, as first and second accuseds respectively. And, because F (ISTV) No. 7617, had in the line "COLLECTED by", J. NKIZES, inserted therein, the person by this name, was arrested and charged as the third accused, and is the appellant charged as above. It is pertinent, to point out here, that the handwriting Expert report Exh. PV reads: G

Hivyo ninayo maoni kwamba sahihi hiyo inayobishaniwa iliyopo penye kielezo "A 4" "Sehemu ya "Collected by " na alama "S" siyo sahihi yake halisi" H

However, it was the 2nd accused who implicated the appellant, in his sworn defence, and called DW.4 Athuman Makongoro, DW.5 Issa Ndiyunviye, DW.6 Ally Dogo, to support the 2nd accused's evidence against the appellant, the prosecution evidence having failed to touch the appellant, and at the stage he implicated the appellant, the I second accused had this to say, and I quote:

1992 TLR p216

KATIT J

A The ISTV was written by Masaba, I took it and went to Kibirizi, then when I was coming down, I saw the third accused, and the driver of motor vehicle 3187 (Rombo Safari) having parked their motor vehicle under a tree. I opened the go-down, and the two brought their motor vehicle. The third accused gave me the ISTV, and a piece of paper. I asked the B third accused as to which country was he taking the goods to. But I knew the standing instructions, that

anybody who comes with papers ISTV was not allowed to be queried.... After loading their motor vehicle, they drove off. The porters who loaded the motor C vehicle are present with the RTC, they can testify, if they are needed. It was the first ISTV, coming to the 2nd ISTV which had two hundred cartons of match boxes.

Such evidence, as apparently confirmed by the evidence of DW.4, DW.5, DW.6, D influenced the trial Magistrate to acquit, the first and second accused persons, but to convict the appellant, of obtaining goods by false pretences c/s 302 of the Penal Code Cap. 16. In approaching to convict, the trial Magistrate, did appreciate, that the evidence implicating the appellant came from the defence. He appreciated too, how convictions emanating therefrom, are unsafe, but nevertheless proceeded to convict E arguing, "I think the magistrate has to look at the overall evidence, rather than depend on the prosecution, if justice is to be done." (The under-lining is mine).

With due respect, to the trial Magistrate, the underlined above imputed to his pen, is F inaccurate in law and grossly, if I may add. While, the trial Magistrate, has to look at the whole evidence, in answering the issue of guilt, such evidence must be there first, - including evidence against the accused, adduced by the prosecution, which is supposed to prove the case beyond reasonable doubt. It is question of burden of proof, and G upon whom it lies. The day shall never come, not in my life time, when such highly priced principles, of criminal prosecution, will be as simplifically thrown into the such dirty dust bin of convenience. That, the general rule in criminal prosecution, the onus H of proving the charge against the accused, beyond reasonable doubt lies on the prosecution, is part of our law, and forgetting or ignoring it is unforgivable, and is a peril not worth taking. Was it not in the case of Woolmington v DPP [1935] 25 Cr. App. R. 72, when Lord Sankey L.C. then said: I

A ... if at any period of trial, it was permissible for the judge to rule that the prosecution had established its case, and that the onus was shifted on the prisoner to prove that he was not guilty, and that unless he discharged that onus, the prosecution was entitled to succeed, it would be unabling the judge in such a case to say, that the jury must in law, B find the prisoner guilty, and so make the judge decide the case, and not the jury, which is not the common law. It would be an entirely different case, from those exceptional instances, of special verdicts, where a judge asks the jury to find certain facts, and directs them that on such facts, the prosecution is entitled to succeed. Indeed, a consideration of C such special verdicts show, that it is not till the end of the evidence, that a verdict can properly be found, and that at the end of the evidence it is not for the prisoner to establish his innocence, but for the prosecution to establish his guilt. Just as there is evidence, on D behalf of the prosecution, so there may be evidence on behalf of the prisoner, which cause a doubt as to his guilt. In either case, he is entitled to the benefit of the doubt. But while the prosecution must prove the guilt of the prisoner, there is no such burden laid on the prisoner to prove his innocence, and it is sufficient for him to raise a doubt, as to his E guilt; he is not bound to satisfy the jury of his innocence ... Throughout the web of the English criminal law, one golden thread, is always to be seen, that it is the duty of the

prosecution to prove the prisoner's guilt ... No matter what the charge, or where the trial, the principle that the prosecution must prove the guilt of the prisoner is part of the F common law of English, and no attempt to whittle it down can be entertained.

And in the case of Mancini v DPP [1941] 3 All E.R. [1941] 3 All ER 272 Viscount Simon LC, added: G

.... I would formulate the following propositions: Woolmington's case, is concerned with explaining, and reinforcing the rule, that the prosecution must prove the charge it makes, beyond reasonable doubt, and consequently, that if, on the material before the jury, H there is a reasonable doubt, the prisoner should have the benefit of it. The rule is general application, in all charges, under the criminal law. The only exceptions arise, as explained in Woolmington's case, in the defence of insanity, and in offences where onus of proof is I specially dealt with by statute.

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And back here, we have cases, like Moshi d/o Rajabu v Republic [1967] H.C.D. A No. 384, that, the burden of proving the charge against the accused is on the prosecution so that the trial Magistrate, to say he cannot depend on the prosecution evidence, is to read the upside down the authorities - and if it is by design, then it is strange and unjudicial behaviour. B

Again, in the same vein of caring about the law, if the trial magistrate had exercised a little care, to acquaint himself with the provisions of section 230 of the Criminal Procedure Act 1985, he would have discovered that the trial Court is enjoined to direct its minds to the evidence adduced by the prosecution when it has closed its case, and C if it appears to the Court that, "the case is not made out against the accused person, sufficiently to require him to make a defence, either, in relation to the offence, with which he is charged, or in relation to any other offence of which under provisions of section 312 - 321 - he is liable to be convicted, and shall dismiss the charge, and acquit the D accused person. Thus, the subordinate trial Court is enjoined at the closure of the prosecution case, to see whether the crime charged, or such offence as is convictable, in the alternative, under Sections 312 - 321 of the CPA 1985, has been established, E and if it has not, the court has to acquit the accused. Thus the trial Magistrate's observation that is not necessary to depend on the prosecution case, is inadmissible and extravagant. In fact, if the trial Magistrate had looked upon the provisions, and I note the said provisions are not even referred to, in the proceedings, he would have noted, F that, by the closure of the prosecutions case, there had not been, an iota of evidence implicating the appellant - and the provisions of Section 230 of the Criminal Procedure Act 1985, would have carried the day triumphantly. That is, if upon the administration of Section 230 of the Criminal Procedure Act 1985, the offence as charged, or as G alternatively convictable under Sections 312 - 321, of the CPA 1985, is not made out, or established, it is mandatory for the trial Court, to dismiss the charge, and acquit the accused person. Of course the trial magistrate, did not acquit the accused in this case.

When all is said and done above, we must concede, that the evidence by the second H accused, and his defence witnesses - DW.4, DW.5, DW.6 implicated the appellant, as having in

September 1988 loaded a hundred cartons at RTC godown, carried and left with the same. This evidence, is not useless in law, I must concede. While it is a fundamental rule of evidence, that statements made by co-accused, statements made I in the course of, and in pursuance of a
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joint criminal enterprise, which the accused was a party excepted, are not evidence A against the co-accused, unless such co-accused, has expressly, or by implication adopted the same as his own, such statements assume a different dimension, when given sworn in the course of a trial in the presence of an accused. That, is, where in joint trial, an accused goes into a witness box, and gives testimony, such evidence he has given, B becomes evidence for all purposes, including being evidence against his co-accused. See R. v Rudd, [1948], 32 Cr. App. R 138.
How such evidence should be approached, and utilised is well settled. In the case of R. v Pratter [1960] 44 Cr. App. R. 83, as qualified, in R. v Reck (1982) 74 Cr. App. C R. 221, it was held that where the co-accused's evidence implicating the co-accuseds, is tainted by improper motive, as having a purpose of its own to serve, it should be received with caution, and accomplice warning may be give, if there is basis, for suggesting that said co-accused, was participant in the crime, or was in any-way D involved in the crime the subject matter, of the trial. That is, co-accused evidence is suspect for many reasons i.e. holier that thou mentality, expectation of elemency, or mercy, etc.
In this case, with a lot of respect, though the evidence by DW.2, and the witnesses E called by him, is indeed implicating the appellant, the said evidence, is also raising questions, that are post-trial difficult to answer. First, although the offences charged, were allegedly committed on the 29/9/1988, the said witnesses gave damning evidence on 28/4/1990, over a year later, why they were not available as prosecution F witnesses, is surprising, and why, the 2nd accused had not disclosed their whereabouts, is a piece of curiosity, a gordian knot. Second, the ISTV No. 7617 Exhibit P1, that the 2nd accused handled first, at the Kibirizi godown, was for transferring hundred G cartons of Kibo Match boxes, from such godown, to Manyovu RTC Retail shop, but according to the 2nd accused, "Asked the third accused, as to which country he was taking the goods to. But I knew the standing instructions, that anybody who comes with ISTV, was not to be queried." But with respect to the 2nd accused, if the ISTV Exhibit H P.1, he was given, was to transfer match boxes from Kibirizi to Manyovu, as it does in equivocally speak by itself, and endorsed, passed by the 2nd accused himself, and the carrier, obviously doing it, on behalf of the said RTC, I cannot see how the question, which country the carrier was taking the goods, arises? I cannot see how, the 2nd I accused, could have received instructions, not to query under the circumstances!
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Third, the 2nd accused said in court, in Examination - In-Chief, and I am sure he had A encouraged his witnesses to say so, that, the used motor vehicle was No. TB 3187, Rombo Safari, but in the ISTV Exhibit P.1, the name of carrier is shown as TB 3178, after an unsuccessful erasure of another 3178. If according the 2nd accused, it was B motor vehicle TB 3187, that carried the charged goods, as he testified in evidence in chief, then why did he, if he did, insert

TB 3178 in the ISTV Exhibit P.1, and where is the ISTV, if any, that was used by motor vehicle 3187? From the above, it is my view, that the innocence that the 2nd accused boldly put on his face, is questionable, as the C legal guilt of the appellant becomes even more doubtful. The 2nd accused, may have been improperly motivated, if not an accomplice, and his evidence is very suspect, and we have no corroboration on the same. In the event, the appeal is allowed, conviction quashed, and sentence set aside. The appellant to be released forthwith, unless he is otherwise legally held. D

Appeal allowed.

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E

[zRPz]ELIAS JOAKIM v REPUBLIC 1992 TLR 220 (HC)

Court High Court of Tanzania - Tabora

Judge Katiti J

19 August 1992 F

Flynote

Evidence - Testimony by children of tender years - Voire dire test - s. 127(5) Evidence Act 1967.

Criminal Practice and Procedure - Sentencing - Accused found guilty on two counts - Criminal Procedure Act 1985.

Criminal Practice and Procedure - Sentencing - Accused currently serving another G sentence.

Criminal Practice and Procedure - Sentencing - Offence committed falls under the Minimum Sentences Act 1972.

-Headnote

Elias Joakim, the appellant was charged and prosecuted before Shinyanga District H Court of two counts - house breaking c/s 294 (1) and stealing c/s 267 of the Penal Code. The appellant was found guilty and sentenced to 2 years' imprisonment on the first count, far below the minimum mandatory sentence prescribed by the Minimum Sentences Act 1972. On the second count the appellant was condemned to 5 years' I imprisonment, without the trial

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Magistrate ordering the same to run, either, concurrently or consecutively. The A convictions were procured basically on evidence tendered by children of tender years.

In mitigation it also transpired that the appellant was serving another sentence. Aggrieved with the conviction and sentence the appellant appealed. B

Held: (i) Competency in giving evidence in so far as the child of tender years is concerned, is not a matter of age, but of understanding;

C (ii) where a child of tender years gives evidence sworn after a successful voire dire test, and that he understands the nature of the oath, his evidence so given is as good as that of an adult;

(iii) it is trite law, under the Minimum Sentences Act, 1972, Section 5, that where the value of the property obtained during the commission of the scheduled offence exceeds shillings five thousand, the minimum sentence imposable is five years D imprisonment;

(iv) it is judicial practice that where in an indictment consisting of several or many counts, that have attracted convictions, the sentence imposed and assigned to each count shall be ordered to run concurrently, if such related offences arose out of a E single transaction, or are part and parcel of a single plan.

Case Information

Appeal dismissed. F

Osward, for the respondent.

[zJDz]Judgment

Katiti, J.: Indicted and prosecuted, before Shinyanga District Court was Elias s/o Joakim, herein to be called the appellant, facing two counts - House breaking c/s 294 (1) of the Penal Code - and Stealing c/s 265 of the Penal Code Cap. 16. At the end G of the day, the appellant, was found guilty and convicted, as charged and sentenced to two years imprisonment on first count, and five years imprisonment on 2nd count, without ordering the same to run, either, concurrently, or consecutively. However, the H Public Prosecutor, before the above sentence, told the court, that the Appellant had previous convictions - store breaking and stealing c/s 296 (1) of the Penal Code Cap. 16 - Criminal Case No. 94/89, and the appellant in mitigation prayed as follows: I

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A I pray for leniency. I pray that, my other sentence I am currently serving, be considered in sentencing me. This is all.

The trial and sentencing magistrate, directed as follows: B

It is further ordered, that as a 2nd offender, and because he was sentenced to six years imprisonment, in the previous conviction, these sentences shall be served consecutively, the resultant effect, being he shall serve a total of seven (7) years imprisonment. C

The appellant aggrieved, has appealed against conviction, contending that the quality and quantity of the evidence, at hand, did not prove the charge preferred beyond reasonable doubt. While the sufficiency and quality of evidence is to be tested, too, to D be visited is the aspect of sentence, that was meted out, or should have been meted out, to the appellant.

The facts of the case, significantly speak for themselves thus. On the morning of 18/7/1989, PW.1 Justina d/o Mazinge, left for work after locking her house. When E she came back at 5 p.m., same day, she was welcomed back by the doors, that were open and ajar. Her count of her properties, disclosed that properties including glasses, plates, spoons, electric iron, handbag, etc. valued at shs 23,885/=, had been stolen therefrom.

The obvious question was, and now, is who broke into this house, and stole. The F Prosecutor, produced PW.2 Zacharia s/o Maganga and PW.4 Kelvin s/o Lumbeli, both aged twelve and seven years of age, respectively, and who after a successful voire dire test, gave evidence on oath. PW.3 Zacharia s/o Maganga, narrating how he saw the G appellant entering the complainants house, at about 2 p.m. has this to say:

The accused that day, came and called Kelvin, who he sent for cigarettes. He gave him money. Kelvin went for cigarettes. When he left, I saw the accused enter Justina's house H by the door leading to the annex rooms. He went and kept for long. About 1/2 an hour, later on, I saw him come out carrying sack full of things, on his shoulders. He came to the place I was, put his luggage down and told me, that, I should tell Kelvin, to keep cigarettes I he had sent for, as he was in hurry, and he could collect them, after he sent his luggage. He wanted to

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A take his luggage and go. I told him, see Kelvin was coming from afar.

It is not timely and opportune at this juncture, to hear from PW.4 Kelvin s/o Lumbeli, who picks therefrom, and tells us thus:

B Sometime last week, I remember I saw Elias pass with an empty sack. He went to the direction of the machine. He later came again, and stopped where we had been playing. He stopped there, and asked me to go for cigarettes. When I came back, I found him with a sack, which now was no longer empty, but full of things. When he saw me from a C distance, he put it on the ground, and came running for the cigarettes before he went back for his luggage and he hurriedly vanished away with it.

With this and such evidence, was the defence that, the appellant was at 2 p.m. with D DW.3 Mama Dina, who had invited him for food. However DW.3 while conceding, the appellant went to her, she denied she had invited him for food, and added that he only stayed there, for two minutes. The appellant also added, he had been attending E meeting at the oil mill, which DW.4 Yusufu Leonard the oil mill chief clerk discounted, saying that, the appellant had been sacked as an employee long before 18/7/1989, and could not therefore attend any meeting, and that in any case, there was no such meeting, on that day at all. F

With such evidence, the trial court found PW.2 and PW.4 credible, establishing that it was the appellant, who broke into the complainants dwelling house, and stole, and hence the conviction. The appellant is complainingly attacking the trial Magistrate, for relying on the evidence of children of tender years - PW.2 and PW.4 to convict him. G The appellant seeks, that the evidence by PW.2 Zacharia s/o Maganga and PW.4 Kelvin s/o Lumbeli, be discounted because of their tender ages.

With a lot of respect, what we wish is not always the right thing, or even legal - wishes are not horse rides. The course of action, that has to be taken, as and when a child of H tender years (child of, or, below the apparent age of fourteen years, - see Section 127 (5) of the Evidence Act) has to give evidence, is not just wished, but dictated by Section 127 (2) of the Evidence Act 1967. That is, under the above subsection, a child of tender years may be sworn, if he understands the nature of oath, or may give evidence I unsworn,

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if he has sufficient intelligence, and understands the duty of telling the truth, so that it A should in my view follow that, competency in so far as the child of tender years, is concerned, is not a matter of age, but of understanding. And to crown it all, the appellant is worth learning,

that the trial Court, may even competently rely on the testimony by a child of tender years, when such child of tender years, has given such B testimony on the side of the prosecution, to convict the accused person, if it is fully satisfied, that the child is telling nothing but the truth, and has warned itself, of the danger of acting on such evidence, in the absence of corroboration. And where a child of tender years, gives evidence sworn after a successful voire dire test, and that he C understands the nature of oath, his evidence so given, is as good as that of an adult, and it is treated that way, and such evidence may only require corroboration, if it is accomplice evidence, or is such evidence which as a matter of practice or requirement of law, corroboration is necessary. D

In this case, PW.2 Zacharia Maganga and PW.4 Kelvin s/ Lumbeli, gave evidence sworn, after a successful voire dire test, that, they knew the nature of oath, and each ones evidence, is as good as that of any adult. If, Justina d/o Mazinge left her house locked, and she came back and found broken into, and goods stolen, and if PW.2 E saw the appellant entering and later coming out with a sack full of things, a sack that was also seen by PW.4, with the appellant's alibi that he had been at the meeting, and or that he had been invited by Mama Dina all denied, and smashed by the appellant's witnesses, the conclusion reached by the trial Magistrate, that it was the appellant who F broke into the house, and stole, is as sound as granite, and gives no room for successful attack. In the final analysis, the convictions on both counts, are upheld.

The last point, to be dealt with in this case, is the aspect of sentence. The trial court, G imposed two years imprisonment, on first count, and five years imprisonment on 2nd count - no more, no less. But there followed another order, that the sentence of six years imprisonment, the appellant was serving upon previous conviction, run consecutively with the above sentence, according to the trial court. "the resultant H effect being, he shall serve a total of seven years imprisonment." May I say, with attendant due respect, that the above is provokingly attracting comments - first - on the legality of sentence on first count - two - the trial magistrate failure to show whether such sentences shall run concurrently or consecutively with the sentence on second count, and - three - the propriety of ordering sentences based on separate indictments I and trials, to run

consecutively, and - 4 - the arithmetical or additional accuracy. I shall hereunder deal A with each, of the above aspects.

The legality, or illegality, of sentence on the first count cannot pass without corrective comment. It is trite law, under the Minimum Sentences Act. 1972, section 5 that where the value of property obtained during the commission of the scheduled offence, (1st B schedule), exceeds five thousand shillings, the minimum sentence imposable, is five years imprisonment. In this case, the appellant stole property worth Shs. 23,885/=. Similarly, where the accused has a previously been convicted of scheduled offence, in the proceeding five years as the appellant had been, (store - breaking and stealing Cr. C Case No. 94/89) and is subsequently convicted of another scheduled offence, the minimum sentence imposable, is five years imprisonment. It would seem to me, that the appellant was legally and sentence wise, cornered, with neither front, nor rear, through which to escape, the Minimum sentence of five years imprisonment.

The illegal D sentence of two years imprisonment is therefore set aside, and five years imprisonment imposed, instead.

Again, the trial Magistrate had left the sentences, on counts (1) and (2) hanging, may be in the parlance, of Section 36 of the Penal Code Cap. 16 "the same to be executed E after the expiration of the former sentence, unless the Court directs, that, it shall be executed concurrently, with the former sentence, or any part thereof, they were to be presumed run consecutively - See Ali Mohamed v R. [1968] HCD No. 63. But the judicial approach has been that, where in an indictment consisting of several, or many counts, the trial court convicts the accused on such several or many counts, it has to F impose and assign each count, that attracted conviction, a separate sentence, and shall indicate therein, whether the sentences are to run concurrently, or consecutively, and not leave them hanging. As it was pertinently observed by the Court of Appeal in the case G of Hussein T. Kabeka and Others [1980] T.L.R. 267 - "A sentencing Court will never go wrong, if on deciding to pass concurrent terms of imprisonment, on an offender, it inflicts sentence on each offence and then directs the sentence so passed to run concurrently, and no more." H

When to decide whether a concurrent, or consecutive sentence, should be imposed is in my view not a gordian know it is not with respect, an inextricable difficulty. The judicial view and approach, on when concurrent sentences, should be ordered, is abundantly and oversupplied in the case law. Citing a few examples, will be as graphic, as will I suffice in my view. In the case of Musa s/o Bakari

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v R. [1968] H.C.D. No. 239, it was held that, it was universal practice, in the A absence of good reason to the contrary, to order the sentence for related offences, of house breaking and stealing, to run concurrently, or where the charged counts, attracting convictions, arose out of single transaction, or are part and parcel of the same transaction, or are part and parcel of single plan of campaign concurrent sentences B will be ordered - see Jayantilar Laiji Kara Shah v R. [1968] H.C.D. No. 328, Ray Raphael Lameck v R. [1967] H.C.D. 190 27 and Joseph A. Kashamakula v R. [1970] H.C.D. No. 201, Just to mention a few. Thus, it is the judicial approach, that where in an indictment, consisting several or many counts, that have attracted C convictions, the sentence imposed and assigned to each count, shall be ordered to run concurrently, if such charged offences are related, arose but of single transaction, or are part and parcel of a single plan. That is, without rule, or order, to the contrary, a good working rule is that consecutive sentences, should not be passed for offences arising D out of the same transaction, as the sum total sentence resulting therefrom, may often prove to be too great considering the circumstances of the case. - See R. v Kaktercum [1972] 56 Cr. App. R. 298. In this case, house - breaking and stealing, are so related, and interconnected operationally, that the sentences should have been ordered to run E concurrently. For obvious reasons therefore, I hereby confirm the sentence on 2nd count, and further order, that the sentences on the two counts, shall run concurrently.

And finally, I verily confess, that I would at this juncture have rested in peace, if it F were not for the trial Magistrate order, that the previous sentence of six years earned, in a different trial,

run consecutively, with the present sentence, which is five years imprison, but computing it have the "effect of being, he shall serve a total of seven G (7) years imprisonment". I come, to this aspect, not because the order was made, and it had to be made in view of the appellants prayers for judicial intervention, otherwise the command by the provisions of section 36 of the Penal Code take its course, but more, I come in because, if as the trial Magistrate ordered, the sentences imposed in H different trials, should indeed be served, consecutively, in the parlance of section 36 of the Penal Code - each sentence to be executed after the expiration of the former sentence they add up to eleven years imprisonment. As I understand, consecutive sentences are accumulative, one sentence being served after the other, - they add up I arithmetically. If this be so and I am convicted it is, six years imprisonment earned in the previous trial,

and five years imprisonment earned in this case, served consecutively can only A add-up to eleven years imprisonment, and not seven years imprisonment, as the trial Magistrate erroneously added up. With the correction, the appellant shall serve the two sentence consecutively - eleven years imprisonment. The appeal is dismissed, convictions and sentences upheld. B

Appeal dismissed.

C

[zRPz]JOSEPHAT SOMISHA MAZIKU v REPUBLIC 1992 TLR 227 (HC)

Court High Court of Tanzania - Tabora
Judge Katiti J

19 August 1992 D

Flynote

Evidence - Confession - Admissibility of confessions extracted by torture - S.29 - Evidence Act 1967.

Evidence - Confession - Admissibility of confessions made before a police officer - S.27 Evidence Act 1967. E

-Headnote

Josephat Somisha alias Maziku the appellant, was at the material time, employed as a watchman by Tabora Region Co-operative Union. On 1/5/90, it was discovered that 18 louver glasses had been extracted from windows and one typewriter stolen. F

Through interrogation by Sungusungu, the appellant confessed to have stolen the louver glasses but not the typewriter. The appellant, in his cautioned statement to 7909 D/Cpl. Benjamin, further confessed to have stolen the louver glasses.

On the strength of this evidence, the trial Magistrate convicted the appellant on the G charge of stealing by public servant c/s 270 and 265 of the Penal Code. In his memorandum of appeal,

the appellant contended that his confessions to the Sungusungu was extracted by threats and with violence.

Held: (i) While it is trite law that the condition precedent for the admissibility of a H confession is its voluntariness, a confession is not automatically inadmissible simply because it resulted from threats or promise, it is inadmissible only if the inducement or threat was of such a nature as was likely to cause an untrue admission of guilt; I

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KATITI J

(ii) where you have threats and a confession far apart without a causal A connection, and no chance of such threats inducing confession, such confession should be taken to be free of inducement, voluntary and admissible;

(iii) it is a principle of evidence that where a confession is, by reason of threat, B involuntarily made, and is therefore inadmissible, a subsequent voluntary confession by the same maker is admissible, if the effect of the original torture, or threat, has before such subsequent confession, been dissipated and no longer the motive force behind such subsequent confession. C

Case Information

Appeal dismissed.

Oswald, for the respondent

[zJDz]Judgment

Katiti, J: Charged and indicted, before Tabora District court, with the offence of D stealing by public servant, c/s 270 and 265 of the Penal Code, was Josephat s/o Somisha alias Maziku, herein to be called the appellant, whose plea of not guilty thereto, introduced the case to full trial. At the end of the trial, the appellant, found himself on the wrong side of the law - was convicted as charged, and finally sentenced to five years E imprisonment. And on heels, to such sentence, was the usual statutory compensation order, that, the said appellant shall compensate, his employer TARECU, the value of the unrecovered typewriter, and louver glasses.

The appellant aggrieved, is appealing against conviction, contending in the main, - 1 - F that he denied and still denies committing the charged offence, - 2 - that he was arrested and tortured by the infamous Sungusungu, and that any confession before whom, being inadmissible in law, the trial Magistrate seriously erred in law, avoiding being guided by G the provision of section 27 of the Evidence act 1967 hereafter to be called the Act to convict him, and - 3 - that the confession before D/Cpl. Benjamin was inadmissible, and that consequently and finally, as a result and left without such inadmissible evidence, the prosections case, is yawningly, wanting, and lacking. The appellant therefore demands H his liberty now.

I can and I am assuring the appellant, that liberty will be his, subject to his innocence remaining undisplayed by guilt. The facts that contributed to the appellant being where he is, are as follows. The appellant was at the material time, employed as a watchman by Tabora Region Co-operative Union, and then, assigned his duties at the Tabora I Branch. It is defying challenge that, on the 1/5/90, it

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was discovered that, eighteen louver glasses had been extracted from the windows, A and the typewriter stolen, all valued at Shillings 67,200/=.
Obviously and invariably the question was, - who was the culprit. It is fashionable, these days of our time to resort, to the obviously officious Sungusungu for assistance, and B as a result, seventeen louvre glasses were recovered, three from PW 3 Wilbert R. Msisi, four from PW 2 Wilberd Mzawa, some from one Pendeza, and some were from yet another person, who did not give evidence. It is a finding of fact, that seventeen louvre glasses Exh. P.1, were recovered though the typewriter is still without a trace, C to date. It is too, a good unchallengeable finding of fact, that PW.2 Wilberd Mzawa, PW 3 Wilbert Msisi and PW.4 Joseph John Manji, claimed to have bought the same from one Ramadhan, whose definition, whereabouts, or other aliases, are one record unknown. However through Sungusungu's interrogation, witnessed by PW 4 Musa D Ramadhan, a sungusungu enthusiast, the appellant confessed to them, to have stolen the louvre glasses, but not the typewriter. And PW.6 S. 7909 D/Cpl. Benjamin, tendering a cautioned statement as Exh. P.2 testimonially told the court that the appellant confessed, in his cautioned statement, to have stolen the louvre glasses. The appellant in his E defence, still protested his innocence, denying that charge, disowning all, that the prosecution said. The trial Magistrate found the evidence establishing the offence beyond reasonable doubt, and convicted.
Mr. Boas, the learned State Attorney, appearing for the Republic supported the F conviction. the case as I see it, stands, or falls, on the only one issue of admissibility of confessions, allegedly made by the appellant, first to sungusungu, and subsequently to PW. 6 C. 9709 D/Cpl. Benjamin, consecutively, to whom, the appellant confessed, to have stolen the louvre glasses. I notice, the evidence was not digested and dissected, G by the trial court, bearing in mind the provisions of section 27 of the Act, on the admissibility of confessions. In fact, the appellant, is attacking the trial court, for its failure to pay attention, to the provisions of section 27 of the Act, alleging as usual than not, than in many cases of this kind, that, the sungusungu extracted the confession H from him, by and with violence.
The evidence digested, to the most desirable extent, it will and has to be discovered, that in this case, somewhere between the theft, the appellants confession, and the recovery of the louvre glasses, is one Ramadhan, who as above said, sold the said I louvre

glasses. As this Ramadhan, is neither an accused, nor a prosecution witness, but for A the appellants confession, we would for sure, have never known, how the louvre glasses left their places of fixture. But it is also in my view true, that the appellant confessed to Sungusungu on 5/5/1990, as witnessed by PW 4 Musa Ramadhan, to have on the 1/5/1990, stolen the said glasses, and in a cautioned statement to PW 6 D/Cpl. B Benjamin, on 10/5/1990 to have stolen the same.
The appellant, as above aforementioned challenges, that the confession by him to sungusungu, was inadmissible, as he was tortured by them, to extract the same from C him. This being the appellant's contention, it doesn't seem to me, that it was a misconception. For first, while it is

trite law, that the condition precedent for the admissibility of the confession, is its voluntariness, the said confession is not automatically inadmissible, simply because it resulted from threats, or promise; it is D inadmissible, only if the inducement or threat, was of such a nature as was likely to cause an untrue admission of guilt, see section 29 of the Act: Second, it is a view I humbly hold, again, that a confession is not just rejectable, because threats have been made. Not at all in my view. This is because, it is for the prosecution to prove E voluntariness of the confession, and once a threat has been shown to have been made, the Court may presume, that it induced the confession, until the prosecution proves, that there was no causal connection, - see Smith (1959) 2 QB 35. [1959] 2 ALL. E.R. 193. So that where you have threats, and a confession far apart, without causal F connection, and no chance of such threats inducing confession, such confession should be taken to be free of inducement voluntary, and admissible. In this case, the appellant confessed before Sungusungu. Although Sungusungu are known for torturing suspects, it is perhaps not permissible to vouch, that they torture every suspect nor is G it justifiable, to raise such conduct into a rebuttable presumption; that they should be presumed to have tortured the suspect, till the contrary is proved. In any case, if one is, or was tortured, the court cannot read the same on the face, the victim has to tell his experience. In this case, through out the prosecutions and the defence case, at no H time did the appellant, either, personally in his defence, or through cross examination, if witnesses show he was tortured at all. It is curious, and easily smelling afterthought, that the same should be raised by him, in his memo of appeal, and I am not inclined in any way to take him seriously. I

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KATITI J

But too, the appellant confessed, before D/Cpl. Benjamin on the 10/5/1990, in the A cautioned statement, inter alia, thus:

Mwezi wa April, 1900 siku ambayo siikumbuki niliamua kuiba (Rovers) kutoka kwenye nyumba ofisi za hapo TARECU Branch. Sikumbuki idadi ya vioo nilivyoiba. Sababu B zilizonifanya niibe rouvers hizo ni baada ya kuuguliwa na mke wangu Janeth d/o William ... Nilipoona hakuna uwezekano wa kuapata fedha za kumuuguza mke wangu, niliona njia nyepesi ni kuchukua louvers hizo nikauze ili nipate fedha za kumpatia matibabu mke wangu. Rouvers hizo nilizichukua kwenye majira ya saa 20.00 za mchana. Nakumbuka C siku hiyo ilikuwa siku ya sikukuu, kama sikukosea nadhani ilikuwa May Mosi, Nilizichukua nilimpelekea Ndugu James, ambaye alikuwa anakunywa kahawa Mtaa wa Usagara. D

In my view, so much and extent of the above statement, from the cautioned statement Exh. P.2, shows how the appellant thought, concieved the plan to steal, and how he executed and consulated the same. In his own defence, the appellant denied E knowledge of what PW.6 D/Cpl. Benjamin said, and tendered. But in his memo of appeal, the same appellant castigates the trial Magistrate, alleging, that the evidence of PW.6, was relied upon without regard, as to his credibility. First to put the cart behind the horse, the excerpt above, taken from the tendered cautioned statement Exh. P.2, F constitutes a confession, it was made before the Police Officer, of the rank of Corporal, and as before and now, as inducements are not alleged, not even by the appellant, to have been committed by him, (PW.6), the admissibility of the said confession,

meets no legal hurdle at all, on its way into the judicial records, and it was rightly admitted G under section 27 of the Act. And if PW.6, recorded correctly and right, what the appellant said, and acknowledged it by his signature, and only equivocally impugns it now, I don't see how, doubts about PW. 6 credibility came about. He recorded what he was told by the appellant, after the administration of the caution. H

It falls and remains to be concluded, that the appellant twice, and at intervals confessed, to have stolen the louvre glasses, to Sungusungu and on the 5/5/1990 repeated the same, to PW 6. As I did find the first confession was on evidence not induced by threats, as the second confession, was also voluntary. But if I may add, though not I duty bound, and for sake of argument, that even if, the

first confession, had been induced, and therefore rendered inadmissible, the second A confession would only be inadmissible, if the threats, or undue influence, under which the first confession was made, was still persistent, when the second confession was made. In other words, even if the first confession were inadmissible for reason of torture - B involuntariness, the second cautioned confession would be admissible, as by the time was made, the effect of the original torture, had been dissipated. Thus it is a principle of evidence, that where the first confession is by reason, if threat, involuntarily made, and is therefore inadmissible, a subsequent voluntary confession by the same maker, is C admissible, if the effect of the original torture, or threat, has before such subsequent confession, been dissipated and no longer the motive force behind such subsequent confession - see R. v D.K. Williams (1968)52 Cr. App. R. 439.

In this case, even if Sungusungu, were to demonstrate their torturing true colours, D and rendered the first confession inadmissible, which on evidence they did not any way, and the confession was admissible, the second voluntary confession would be admissible, as on 10/5/1990, when the second confession was made, five days later, such torture even if perpetrated, on 5/10/1990 would not still be influential events. E But, to all intents and purposes, I believe, the evidence vindicating, no torture/ undue influence, has been shown to have been exercised, and the belated complaint by the appellant, is only a product of afterthought, some kind of wisdom after the event, that hardly has any retrospective efficacious effect. And same and sound as the appellant F was, and is, with the opportunity any way, he could not have confessed giving the details of theft, unless he actually stole. I like the trial court, I am satisfied beyond reasonable doubt, that the appellant committed the charged offence. He was rightly convicted, and as the sentence is only the statutory minimum for the offence, interference with the G same, is not legally attractable. The appeal is therefore, totally dismissed.

H Appeal dismissed.

A

[zRPz]JOHN CHUWA v ANTHONY CIZA 1992 TLR 233 (CA)

Court Court of Appeal of Tanzania - Tanga
Judge Ramadhani JA

20 August, 1992
Flynote
Civil Practice and Procedure - Appeals - Leave to appeal filed two days out of time - B Affidavit of material person not filed to explain the delay - Effect.
-Headnote
An application for leave to appeal was filed two days after time. The delay was explained. It was said that the documents for the application were filed well within C time but that the receipt for the fees was issued two days out of time. The learned judge of the High Court ruled that the date of filing the application is the date of the payment of the fees and not that of the receipt of the relevant documents in the registry. The delay D in paying the fees was explained by saying the cashier was absent from the station and hence no receipt could be obtained although the money was paid on the date the relevant documents were submitted. The said cashier did not file an affidavit to explain the applicant's delay. E
Held: An affidavit of a person so material, as the cashier in this case, has to be filed.
Case Information
Application dismissed. F
Akaro, for the applicant.
[zJDz]Judgment
Ramadhani, J.A.: Here I have consolidate two applications. In Civil Application No. 3 of 1992 the applicant, John Chuwa, is seeking leave to appeal while in Civil Application No. 4 of 192 he is praying for a stay of execution of the same decision in Civil G Appeal No. 2 of 1984 (H.C.). Both parties did not object to the consolidation.
The judgment complained of was delivered by Mushi, J. on 13/6/1990. The notice of appeal was filed in time on 25/6/1990 which was within time. However, the receipt for the fees was issued on 29/6/1990 which date was out by two days. According to the H learned judge, the date of filing the application is the date of the payment of the fees and not that of the receipt of the relevant documents in the registry. Mr. Akaro, learned advocate for the applicant, conceded that before me and I cannot fault the learned I judge there.
1992 TLR p234
RAMADHANI JA
In this application Mr. Akaro sought to explain that discrepancy. He filed two A affidavits: one by the applicant and the other by one Emmanuel Kanju, who was a court clerk at the material time. It is stated that the papers were submitted at the registry on 25/6/1990 and were properly stamped by Mr. Kanju . However, as the cashier was B absent then the fees were left with Mr. Kanju who undertook to pass them on to the cashier. That was done and hence the receipt dated 29/6/1990.

Mr. Akaro answered me that he did not find it necessary to produce these affidavits before Msumi, J. because he was satisfied that the date of filing the documents was C that which appeared on the registry stamp which was within the statutory limit.

Let me pose here and make an observation that there is a contentious point here of whether or not it is proper to admit this new evidence which was not produced before Msumi, J. However, I have chosen not to decide that point but to assail the additional D evidence itself. One of the reasons for avoiding making that decision is that the parties did not address me on that point.

The respondent, Anthony Ciza, appeared in person. He pointed out that the affidavit of Mr. Kanju does not show when the fees were passed on to the cashier. Then, the E respondent argued, that if Mr. Akaro or the applicant were really serious they would have made a follow-up on the payment of the fees to the cashier the next day i.e. 26/6/1990 and that they would not have waited until 29/6/1990 and that they would not have waited until 29/6/1990 when the receipt was given to them by Mr. Kanju. F

These are two very strong points which demolish the effect of the affidavit of Mr. Kanju. In addition the failure to file an affidavit by the cashier is even more devastating. This Court decided in Kighoma Ali Malima v Abas Yusufu Mwingamno Ci v Application G No. 5 of 1987 (unreported) that an affidavit of a person so material, as the cashier in this case, has to be filed.

So with the shortcomings detailed above the production of the new evidence, whether rightly or wrongly, does not cure the defect which confronted Msumi, J. And for that very reason, like Msumi, J., I have to dismiss this application with costs. H

The respondent submitted that if the application for leave to appeal fails then the prayer for a stay of execution must fail too. I think there cannot be a more logical proposition than that. So too the prayer for a stay of execution is dismissed with costs.

I Appeal dismissed.

1992 TLR p235

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[zRPz]THEODELINA ALPHAXAD A MINOR S/T NEXT FRIEND v THE MEDICAL OFFICER I/C, NKINGA HOSPITAL 1992 TLR 235 (HC)

Court High Court of Tanzania - Tabora
Judge Katiti J

20 August, 1992 B

Flynote

Tort - Negligence - Professional - Liability of medical staff - Vicarious liability of hospital - Standard of care and skill.

-Headnote

In an action for damages for negligence arising from professional negligence of a doctor in attending the plaintiff, causing the amputation of her arm, the trial judge found that C the defendant was negligent.

Held: (i) If a person is admitted as a patient by a hospital, and is, in medical treatment occasioned injury through the negligence of some member of staff, it is unnecessary D for him to pick upon any identifiable particular employee for suing purposes. The said hospital is vicariously liable;

(ii) where the doctor, consultant, etc. are selected and employed by the patient himself, the question of vicarious liability by the hospital does not arise, and such E liability does not attach to the hospital;

(iii) where in a hospital, the doctor engaged, has seen him and the patient, established the doctor and patient relationship, by accepting him/her for treatment purposes, the said doctor has a duty of care, and has to exercise the same with skill F attendant to modern medicine and surgery, under permitting circumstances. Such general duty is not subject to dissection into a number of component parts, to which different duty of care apply, or combination of both, i.e. that the investigation and, or G treatment of the plaintiff was in accordance with current standards of medical practice, or, that, the plaintiff's injuries were not caused by any negligence on behalf of the defendants.

Case Information

Judgment for plaintiff. H

[zJDz]Judgment

Katiti, J.: One Alphaxad Mirobo, the next friend of Theodeolina Alpha, a minor then aged six years, filed this action on her behalf in this Court, against the Medical Officer In Charge of Nkinga Hospital, claiming Shs.5,000,000/=, as damages with interests, and I costs of the suit, and such further reliefs as may be

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KATITI J

commensurate to the occasion, for the loss of the left fore-arm, that was amputated, A claimedly and allegedly, because of faulty and negligent treatment of the same, by the defendant. The plaintiff did not give evidence.

With the defendant demurring that, it was the plaintiff's father, her next friend, that was B negligent, in not sending back the child, to hospital, I plainly drew the issues, as follows:

(1) Whether Nkinga hospital was negligent in the medical treatment of Theodelina Alpha, as to lead to limb amputation. C

(2) What reliefs, if any, are the parties entitled to?

What happened, to the culmination of the suit, is yearning indeed. The facts, as they themselves understandably and audibly speak, are straight-forward, and D uncomplicated, and they are as follows. P.W.1 Alphaxad Mirobo, a Primary School teacher, as at the material time, is the father of Theodelina Alphaxad, who at the material time, was and still is a minor, but then aged six years. Both were residents of Nguyiti village, in Igunga District, Tabora Region. And Nkinga Hospital well known in this E area, is a private Mission Hospital, being run by the Pentecost Church of Tanzania, situated in Igunga District, Tabora Region. At the material time, a certain Dr. Martin was in charge of the same hospital, only to be succeeded by D.W.1 Dr. Lars - GOHAN LIND GREEN as from 6th July, 1991. And it is defying controversy, that this Hospital

F among others, had then employed P.W.2 Dr. Kirungu a surgeon, PW.3 Mrs. Juliana Lusinga then a student nurse, and P.W.4 Andrew Athanazi, then a male nurse among other, to mention only a few. Thus, that P.W.2 Dr. Kirunga a Surgeon, P.W.3 Mrs. Juliana then a student nurse, were the employees, of Nkinga Hospital, is as true as the G birth of Christ - and hence the contractual employer and employees relationship between them - i.e. Nkinga Hospital, and the said employees, respectively.

Undefiably, and there is no controversy, on the 21/1/1991, the minor Theodelina H Alphaxad, was on her playing errands, with her agemates, when she fell and hurt her arm. The dispensary Sungwizi, to which she was rushed by her father, referred her case management to Nkinga Hospital. And that, on the very 21/1/1991, she was received by Nkinga Hospital, is conceded by no less, an authoritative person, than Dr. Kirunga, I who concedes his failure to attend her, on that very day for reasons, - (1) that it was an X-ray

day, which I humbly think the minor wanted immediately, in the first place, and, - (2) A - that the minor had eaten, and six hours had not elapsed, as administering anaesthesia at that time, or before the lapse of that period, would have attracted vomiting, with attendant negative consequences, upon the respiration system. And of course as advised, P.W.1, did take the child home, not-withstanding, the condition she was in. B

The minor, plaintiff, it is defying challenge, was sent again to the very Hospital, on the 22/1/1991, when the X-ray Exhibit "A", revealed the fractures of both the ULNA and RADIUS - the two forearm bones, the said Minor was anaesthetized, and a P.O.P. C installed, or a plaster casted, against the affected area, by no less a Surgeon than Dr. Kirunga, who according to P.W.1, discharged them despite her feeling of pains, with instruction to go home and report back, after a week. It is again too true, to be dismissed, that on 25/1/1991, the minor while suffering from pain generating tears, D was sent back to the very Hospital, but she was not treated on this day, and on the 26/1/1991, upon the P.O.P. being removed, the hand was found to have blackened, the circulation of blood in the affected area negative, and as it could not be improved, and consequently, the arm, was amputed on the 7/2/1991. And because of the above E undefied facts, the plaintiff is avering that the Hospital, "was negligent in their actions, which were not in accordance with good medical practice, during the whole course of treatment" i.e. delay of treatment, and manner of treatment.

While the plaintiff avers, and apportioned negligence to the hospital in their mode of F treatment, defendant Hospital demurred, and tried to throw the suit ball, back into the yard of the plaintiff D.W.1 Lars - Gohan Hind Green, the medical officer in charge of the very Hospital since 6th July 1991 may as a person, be forgiven sympathetically, as absent as he had been, he can only theorise, about generally accepted medical G Standards, generally exercisable, and not testify as to the standards, that were actually applied, in the management of this case. But, it is very true that D.W.2, Dr. Kirunga was the one who handled, the minor's case. While Dr. Kirunga, concedes to have not treated the minor on the 21.1.1991, when he saw her, and concedes not to have H treated the minor on the 25.1.1991, - till 26.1.1991, the discoloration of

skin, and circulation of blood impediment, had set in, and hence the amputation, that was consumated. She was cared for, on 26.1.1991, despite her arrival on 25.1.1991, upon it being observed as shown, by Outpatient Card Exhibit "P.B" that: I

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KATITI J

A That fingers now is black, like gangrenous process probably due to fracture complications, or P.O.P. compressed the blood supply - remove the P.O.P.

In para (7) and (8) of the Written Statement of Defence, it is being averred, that, the B real mistake was that, she did not "return immediately to Hospital, when getting pain, swelling, and miscolouration of hard and arm. And that, information was given by the attending Surgeon Dr. Sabri Kirunga, at the first attendance on the 22.1.1991, of possible complication after applying, the P.O.P. and, absolute need to come back C immediately in case of any complications". Indeed D.W.2 Dr. Subri Kirunga testified this:

"I told the father before the patient, is anaesthetized that after the operation, if the patient shows any swelling, or pains, she has to be brought back immediately." D

Indeed, it is a fact as conceded by the defence, that the minor in the very afternoon of the very, 22.1.1992, was already complaining of pains, and D.W.2 Dr. Kirunga reacted, as follows to the same:

E I looked at the arm, and did not note any swelling. I was hesitant to make any adjustment. But when the child complained of pains, I called for instrument to cut the P.O.P., I cut the P.O.P. to release, the thumb, where the pains were being left for two inches. I asked the F child, if she still felt pains, and upon getting a negative answer, I left them to go.

Crowning it all, the case is that, while the plaintiff claims that the totality, or the accumulative effect of the spectrum of treatment, assumed a negligent culmination, and G hence the detested amputation, defendants washing their hands off the episode maintained, that the plaintiff's father was to blame, in not bringing the child back to hospital upon the complication, that had been communicated to them, setting in.

Whether the hospital was negligent, is the question that wants an answer. The plaintiff H claims damages, against the hospital, saying that even Hospitals, attract liability, where there has been professional negligence, in the treatment of the patient. Whether, or not, a hospital is liable for the professional negligence of its staff, is well established, and in the case of: Cassidy v Ministry of Health I

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KATITI J

[1951] 2 K.B. 343, and at page 359, Lord Justice Denning's view, on the same is as A follows:

"If a man goes to a doctor because he is ill, no one doubts that the doctor, must exercise reasonable care and skill, in his treatment, of him, and is so, whether the doctor is paid B for his service, or not. But if the doctor is unable to treat the man himself, and send him to hospital, are not the hospital authorities then, under a duty of care of their treatment of him? I think they are. Clearly if he is a paying patient, paying them directly for their treatment of him, they must take reasonable care of him, and why should it make any C difference, if he does not pay them

directly, but only indirectly through the rates which he pays to the local authority, or Insurance contributions, which he makes in order to make the treatment? I see no difference at all. Even if he is so poor that he can pay nothing, D and the hospital treats him out of charity, still the hospital, are under a duty to take reasonable care of him, just as the doctor is, who treats him without asking a fee.

E In my opinion, authorities, Government boards, or other corporations, are in law under the self-same duty, as the humblest doctor, whenever they accept a patient for treatment, they must use reasonable care, and skill to cure him of his ailment. The hospitals cannot of course do it themselves, they have no ears to listen, through the stethoscope, and no F hands to hold the Surgeon's knife. They must do it, by the staff which they employ; and if their staff are negligent in giving the treatment, they are just as liable, for that negligence, as is anyone else, who employs others, to do his duties for him. What possible difference in law, I ask, can there be between hospital authorities, who accept a patient for G treatment, and sailing, of shipping authorities, who accept passengers for carriage? None whatever. Once they undertake the task they come under a duty to use care, in the doing of it, and that is so, whether they do it, for reward or not. ..." H

Another similar persuasive lesson, on the matter could be gathered from the case of Roe v Ministry of Health [1954] 2 W.L.R. 915, Lord Denning, was, as was usual, professional and expertly at it again. He held thus: I

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KATITI J

A The Hospital authorities, are responsible for the whole of their staff, not only for nurses and doctors, but also for the anaethetists and the Surgeon. It does not matter, whether they are permanent, or temporary, resident or visiting, wholetime, or part time. The Hospital authorities are responsible for all of them. The reason, is because even if they B are not servants, they are agents of the hospital to give treatment. The only exception is the case of consultants, or anaethetists selected, and employed by the patient himself.....

I am, from the above excerpts given to think that Cassidy's, and Roe cases above, C support the good and objective propositions, - One - (1) - that if a person is admitted as a patient by a hospital, and is, in medical treatment occasioned injury through the negligence of some member of staff, it is unnecessary for him to pick upon any identifiable particular employee for suing purposes, the said Hospital is vicariously D liable - two - (2) - the law seems to apply the principle of responde - at Superior, in the case of a hospital, just as it does, in the case, of master and servant, in any other sphere of activity; professional, industrial or otherwise. and three - (3) -, where the doctor, E consultants etc. are selected and employed by the patient himself, the question of vicarious liability by the hospital does not arise, and such liability does not attach to the hospital, that did not employ them.

Thus, we may as well say, authoritatively, that hospitals are responsible for all those, F in whose charge the patients are, or patient is. In other words, where in a hospital, the doctor engaged, has between him and the patient, established the doctor and patient relationship, by accepting him/her, for treatment purposes, the said doctor has a duty of care, and has to exercise

the same, with skill attendant to modern medicine and G surgery, under permitting circumstances. Such general duty, I better add, is not subject to dissection into a number of a component parts, to which different duty of care, apply, or combination of both, i.e. that the investigation and or treatment of the plaintiff was in accordance with current standards of medical practice, or that, the plaintiffs injuries H were not caused by any negligence on behalf of the defendants. In this case, the defendants are adopting, both approaches.

Dutifully digging into the evidence, as adduced will give nothing, but the truth on the matter, whether there was negligence on the part of the hospital. It is a finding of fact I that the minor was

referred to the defendant hospital on 21.1.1991 with a hurt hand, and it is conceded A by Dr. Kirunga, that the minor was not treated on this day. But Exhibit "P.A.", shows, what I assume was symptomatic diagnosis:- "dislocation of left arm - Like Green stick fracture - X-ray, kesho" dated 21.1.1990. It is therefore ....., and perhaps good sense as well, that where the doctor is himself under a duty of care, he has to apply such B care, throughout, right from time, he has received the patient, knowing as we should, that the body, does not function, as a stop-watch, - operate as and when the doctor wants.

The reasons that Dr. Kirunga gave, for not treating the minor on 21.1.1991, was that it was an X-ray day, and that the said minor had eaten. Such, in my humble mind being C the reason for sending the patient back home, after receiving her, is flabbergasting and unacceptable, for if it was an X-ray day, then X-ray examination was the most needed, at that material time, to determine the extent of the harm, and if I have to surmise, I D cannot imagine, that there were no emergency facilities, either. The reason for not treating the minor on 21.1.1991, is given by Dr. Kirunga, thus:

> On 21.1.1991 it would be impossible, as it was X-ray day, and second the child had eaten, and normally six hours had to elapse after eating, before anaesthesia can be E administered, to avoid committing respiring vomit resulting in ugly consequences.

With respect, if X-ray had not been taken, the extent of harm was unknown, and as F such, the anaesthesia administration, could not be contemplated, in the first place. I thought, in my humble unprofessional view, that it was the X-ray examination, which would have led to the conclusion, whether or not anaesthesia, should be administered. But it was an X-ray day, and why the minor was not X-rayed, we need revelation by G divine power. Further, the said learned doctor, does not seem to have tried even a small inquiry, to find out as to how many more hours, had to pass, for the child to qualify for the anaesthesia administration, as admitting the child to await the lapse of such hours, would have made a lot of difference, than sending her to home village altogether. And H to expect proper management of such hurt condition, whose extent was not even known to a doctor was to expect too much. With a lot of difference, but with respect, this way and manner of dealing with a patient, hardly accords with the exercise of reasonable skill I and care, in the treatment of the patient. For, certainly sending a known patient

back home, in villages where facilities are known to be wanting, means late diagnosis, A primary treatment delayed, as of course in the meantime, no therapy has been given. The consequences of the same, can be extremely serious, as irreversible changes can take place, in the body, or affected area, which actually in my view, took place. The B hand deterioration process, had no stop watch system i.e. stop when the child is sent home, or otherwise unattended, but resume the process, when the doctor is around, -but the purpose of going to hospital, is to have the same arrested immediately.

If it may be recapitulated, further and I think, it should be, the minor was dressed in, C P.O.P. on 22.1.1991, after the X-ray examination necessitated such a course of action, and it was not long after, that the child felt pains - after such P.O.P. installation, - and this is conceded by Dr. Kirunga thus:

D On the 22.1.1991, when the plaintiff came claiming the child was having pains, I cut part of the P.O.P. After that the child said, she was not feeling pains any more.

This first shows, that immediately, the P.O.P. was already demonstrating itself as ....., E and the plaintiff dutifully reported, as earlier warned. While I may concede, that the learned doctor did, the needful at that time, I must submit, that what he did was cosmetic, in the circumstances. for, in my modest view, such was the danger signal, and reasonable skill and care, would have demanded circumspection, by monitoring the F progress, instead of discharging her, to the village. But the learned doctor knew the potential dangers attendant to P.O.P., for in that direction, Dr. Kirunga said:

The P.O.P., is know for impairing blood circulation. G

I am heartily thankful to him, for this disclosure. If I get the doctor right, he means that the P.O.P. may become tight, causing increasing severe pains, loss of sensation, impairing blood circulation, leading to gangrene and hence loss of limb, or a functionally useless limb, - an actuality that the minor experienced, and suffered. But with even H greater respect to Dr. Kirunga, if the pains signal, were already setting in, on the very day, and were rightly reported to him, I would have imagined, that the very Surgeon, who should have professionally anticipated such complications, should have made certain that, not only the cast, or P.O.P. is adequately adjusted, but too, the patient is I carefully monitored, so that, if such warning signs

persist, the P.O.P. is split. And it beats my imagination, why the minor, was without A prejudice, not attended on her arrival on 25.1.1991, the doctor only to be rudely awakened, to the fact, that the fingers were getting black on 26.1.1991. In my humble view, failure to take adequate precautions, or act promptly, when the signs of trouble appeared, and to let the patient to go hence, without thorough observations and to B leave him unattended on the 25.1.1991, when she reported, is indefensible, and hardly can it be said, that reasonable standard of care, and skill were applied.

The defendants averments that, it was for the plaintiff's father P.W.1 to take, the minor immediately it felt pains, to hospital, has above been answered successfully in my C view, that as pains set in almost immediately after the P.O.P. was installed, the report, was accordingly made to Dr. Kirunga. It was for Dr. Kirunga, to monitor the same, considering the potentialities of the harm - but he did not, with respect. But if I may go further, may I peep, into what kind of information the doctor ought to give to his D patient, and whether the information he gave to the minor's father P.W.1 was commensurate with the occasion, and the harm being experienced. In the case of: Sidaway v Board of Governors of Bethlem Royal Hospital, and Maudsley Hospital 4[1985] A.C. 871, [1985)]1 All. E.R. 643 H.L., it was held that, it was settled E English Law, that when a doctor decides, what he ought, or ought not, to tell his patient, about the risks of the proposed procedure, the lawfulness of what he does, will be principally judged by tests founded, on the evidence of appropriate contemporary standards of professional care. That is the doctor, will be found to have been in F breach of his duty of care, to his patient, if he did not make enough disclosures, and the patient satisfied the court, that, he has suffered harm, as a consequence of the non-disclosure. And coming to think of our mother-land, I would in trepidation, fear, to imagine, and worse refuse to hear, that, our circumstances would demand less G modern and contemporary standards of professional care; in the information, being given to the patient, as to his diagnosed ailment. In Sida-way case, (supra), Lord Temele Man, in annunciating the type, and nature of information, to the patient, by his doctor, said thus: H

At the end of the day, the doctor, bearing in mind the best interest of the patient, and bearing in mind the patient rights, to information which will enable the patient to make, a balanced judgment, must decide what information should be couched. The Court will I award damages, against the doctor,

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A if the Court is satisfied, that the doctor blundered, and that the patient was deprived of information which was necessary for purposes, I have outlined above.

I would draw an educative lesson from the above, that when the doctor and patient B relationship exists, and the doctor decides to give his patient information about his/her ailment, such information must be such as to enable the said patient to make a balanced judgment, in respect of his/her ailments, or signs pertaining to the same, and such information, must, circumstances permitting, be consistent with contemporary standards, of professional medical care. C

In this case, without prejudice to the fact, that the minor did any way report about the pains setting in, on that very day, and therefore, Dr. Kirunga should have been on alert, the doctor knowing the child's problem only told P.W.1, that if the minor felt pains, he should be sent to Hospital immediately. With respect, Dr. Kirunga did not divulge D enough to P.W.1, and the minor, about the potential dangers involved, including possible amputation of the affected arm. From the above, the patient having not been attended, or otherwise, even after symptomatic diagnosis on 21.1.1991, when she should have been and hence delayed treatment, on the 22.1.1991 with P.O.P. E straight occasioning pains showing it had not professionally been

installed, and, the cast or P.O.P. being just cut in part instead of monitoring her, considering the dangers known to D.W.1 Dr. Kirunga, her not being attended on 25.1.1991, when she returned in treating pain, only to be attended on 26.1.1991, when the gangerous process was F already setting in, and the non-disclosure of the real dangers potential to the harm, suffered by the minor, before being discharged to their village, show that by any stretch of imagination of the same, no reasonable care and skill, founded on the appropriate contemporary standards of professional care, were applied to this patient. I hold and G find in my view, that, the hospital was negligent in the treatment of the patient, and it is so guilty, and I so find.

The general damages sought are, Shs. 5,000,000/=, interest at 7%, from filing of the suit etc. for loss of the limb. The plaintiff did not even elaborate on how such figure was H reached. But I can hardly blame him, as this is a difficult area, scaring even old hands in this business. But as it was pointed out in the case of Admiralty Commissioners v SS Susquehanna [1926] A.C. 665, and approved in West v Shepheld [1964] A.C. 326, damages for tort, or even breach of contract, are such damages, which so far as I money can compensate, will give the injured party, reparation for the wrongful

act. After all, as it was pointed out, in West v Shepheld [1964] A.C. 326 money A cannot renew the physical frame of the limb etc., that, has been battered, and all the court, can do is to award sums which must be regarded, as given reasonable compensation. In this case, in my view, considering the current money value, I hereby award Shs. 1,200,000/=. That I think meets the justice of the case, and such amount B is so awarded, with costs and prayed interests.

Order accordingly.

C

[zRPz]SHEMBILU SHEFAYA v OMARY ALLY 1992 TLR 245 (CA)

Court Court of Appeal of Tanzania - Tanga
Judge Ramadhani JA

20 August, 1992 D

Flynote

Civil Practice and Procedure - Court of Appeal Rules - Application for extension of time to file a notice of appeal - Ill health without elaboration given as reason - Whether sufficient reason. E

-Headnote

The applicant who lost an appeal in the High Court delayed to file his notice of appeal within the prescribed 14 days period. Then he filed an application in the High Court for extension of time to file a notice of appeal. The application was dismissed because "ill F health without elaboration cannot amount to a good reason...." Aggrieved by the decision of the High Court the applicant appealed to the Court of Appeal

Held: No sufficient reason has been given for the delay. G

Case Information
Application dismissed.
[zJDz]Judgment
Ramadhani, J.A.: The applicant, Shembilu Shefaya, was sued by the respondent, Omari Ally, in Dochi Primary Court and won the case. So Omari appealed H successfully to the District Court of Lushoto. Then Shembilu, the applicant, appealed to the High Court but without success. He now wants to appeal to this Court.
The judgment of Mr. Shungu, Principal Resident Magistrate (Extended Jurisdiction) was read over to the applicant in Lushoto District Court on 13/12/1989. However, the 14 I days in which he
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was to file his notice of appeal elapsed without his doing so. A
The applicant then filed an application in the High Court for extension of time to file a notice of appeal. that application was dismissed by Mushi, J. because "ill health without elaboration cannot amount to a good reason for extending time to file notice of appeal ... after a delay of about five months." B
The applicant has come to this Court with the same prayer for extending time to file a notice of appeal. His affidavit in support of this application does not provide the elaboration which was wanting before Mushi, J. Even at the hearing he merely insisted that the disease he had was not one for hospital treatment and that the local doctors C could not be available to bear witness to that fact. Now, that, as properly points out by the respondent in his counter-affidavit, could be alleged by any body with impunity. For court work we need something more than excuses.
Then the applicant merely attacked Mushi, J. that the period which elapsed between D the decision and the filing of the application was not five months but fifty days. But fifty days is neither a short period nor excusable.
No sufficient reason has been given for the delay and as such I cannot see any reason E for enlarging time. The application is dismissed with costs.
Application dismissed.
1992 TLR p246
F
[zRPz]D. P. VALAMBIA v TRANSPORT EQUIPMENT LTD 1992 TLR 246 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mfalila JA

24 August, 1992 G
Flynote
Court of Appeal Rules - Motion - Whether a motion is an application at the time of filing - Failure to serve a copy of the letter applying for certified copy of proceedings upon the

respondent - Failure to serve notice of appeal upon the respondent - Whether an H application to save an appeal entertainable.

-Headnote

In an application to extend the time in which to serve notice of appeal from the Ruling of the High Court of Tanzania, the Justice of Appeal found that the application was not I entertainable as it was made to save the appeal after another application to strike out the

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notice of appeal had already been filed. Further the Justice of Appeal found that the A application was technically not entertainable for failure to comply with Court of Appeal Rules regarding service of a copy of the letter applying for a certified copy of proceedings in accordance with Rule 83(2) and failure to serve upon the respondents the notice of appeal as required by Rule 77(1). B

Held: (i) A motion is an oral application made at the time when the applicant addresses the Court or Judge, not when the notice of motion is filed;

C (ii) if the respondent does not serve upon the applicant a copy of their letter in which they apply for a copy of the proceedings as required by Rule 83(2) they are not covered by the exception in sub-rule (1). Thus if the Registrar issued them with a certificate under sub-rule (1) of Rule 83 such certificate was issued under a mistake of fact. Consequently the period available to the respondents in which to institute the D appeal was sixty days;

(iii) failure by the respondents to serve a copy of the notice of appeal on the applicant through negligence and/or inaction is a failure to take an essential step in the proceedings as required by Rule 77(1). E

Case Information

Order accordingly.

[zJDz]Judgment

Mfalila, J.A.: This matter concerns two applications which were consolidated by order of this Court dated 3rd July, 1992. These are application Nos. 13 and 29 of 1991. In F Application No. 13 of 1991, the applicant is D.P. Valambhia and Transport Equipment Limited are the respondents, while in Application No. 29 of 1991, the roles are reversed, Transport Equipment Ltd. are the applicants and D.P. Valambhia is the respondent. At this stage, a brief historical background would be in order. In Dar es G Salaam High Court Civil Case No. 240 of 1989, M/S Transport Equipment Limited, sued D.P. Valambia whom they had Commissioned to collect on their behalf, certain monies due to them from the Government of Tanzania. This Commission was worth $ 150,000, but they alleged that D.P. Valambia had made fraudulent attempts to have H paid to his personal account abroad a sum of money far in excess of his entitlement. D.P. Valambia denied the allegation and counter-claimed on the basis that he was entitled to 45% of the contract sum due to Transport Equipment Limited. On the I hearing date, the plaintiffs did not appear, the suit was therefore dismissed and the

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judge entered judgment in favour of the respondent on his counter-claim. That was on A 12th February 1991. On 14th February 1991, the plaintiffs Transport Equipment Ltd., filed with the Registrar of the High Court a notice of appeal, that they intended to appeal to this court against the whole of the Ruling and Judgment of the High Court. This B notice for one reason or another was never served on D.P. Valambia the prospective respondent in the intended appeal until two months later on 19th April 1991 when D.P. Valambia filed a notice of motion, instituting Civil Application No. 13 of 1991 in which he prayed to move a judge of this Court for an order that the notice of appeal filed by C the respondents Transport Equipment Limited be struck out on the ground that some essential step in the proceedings had not been taken and/or has not been taken within the prescribed time, and for an order that the costs of and incidental to this application may be paid by the said respondents. This application was supported by two affidavits D deposed to by the applicant D.P. Valambia and one Hamisi Dihoni a clerk in the Chambers of Maira & Co. Advocates, the applicant's Counsel. The respondent Transport Equipment through their Counsel E.H. Mbuya, opposed this application and filed two counter affidavits. Counter affidavit I was deposed to by Miss Cecilia Joyce E Sichalwe, A Secretary in Mr. Mbuya's office, while counter affidavit II was deposed to by Mr. Evarist Mbuya himself.

Before this application was disposed of, Transport Equipment Limited filed a notice of motion to move the Court for an order that the time for serving the respondent with a F copy of the notice of appeal be extended up to the date the respondent received the said notice of appeal and for an order that costs of and incidental to this application abide the result of the said appeal. This was registered as Civil Application No. 29 of 1991. When Civil Application No. 13/91 came up for hearing before Omar, J.A., G Mr. Mbuya applied orally to have that application consolidated with his client's application No. 29/91. After hearing the arguments, Omar, J.A. dismissed the application holding that "Lumping the said applications together would not meet the ends of justice because each application has its own separate object to pursue." Mr. H Mbuya was dissatisfied with this refusal to consolidate and he took it on reference before the Court. The Court consisting of Makame, Kisanga and Ramadhani, JJA, allowed the reference stating at page 2 of the typed Ruling:

I We think with respect to refuse to consolidate would be to

A fragment the process and delay the outcome. We are satisfied that to consolidate would be the better course in the circumstances and we so order.

This Order led to these consolidated proceedings before me involving Civil Applications Nos. 13 and 29 of 1991. B

For my part, in dealing with the present applications, I did not lose sight of the decision of this Court in Civil Appeal No. 34/88 where the problem facing the Court and the way counsel for the appellant sought to go about it are similar to those facing me in the present applications. In that appeal, Arusha International Conference Centre v. C Damas Augustine Ndemasi Kavishe, the question arose as to whether a notice of motion to save an appeal could properly be taken out in answer to another notice of motion which had sought to have that appeal struck out as being incompetent. This to me appears to be what Transport Equipment Limited were trying to do in

their notice D of motion in Civil Application No. 29 of 1991, namely to save their notice of appeal from being struck out as prayed for in Civil Application No. 13/91. In that appeal, the Arusha International Conference Centre was appealing against the decision of the High Court granting an injunction against it, restraining it from evicting the respondent from E a residential house. When the matter came up for hearing, Counsel for the respondent orally took a preliminary objection that an essential step had not been taken in that the appellant had failed to extract the decree being appealed against and make it part of F the record of the intended appeal. However the Court refused to entertain this oral applications being against the rules, but he was allowed to file the necessary notice of motion in which he sought to have the appeal struck out as being incompetent. At the resumed hearing, Counsel for the appellant filed a notice of motion seeking extension G of time to file the memorandum and record of appeal and leave to file a supplementary record of appeal. Faced with this situation, the Court (Kisanga, J.A) stated:

H It thus became apparent that the situation was getting confused because a notice of motion to save an appeal could not properly be taken out in answer to another notice of motion which had sought to have the appeal struck out as incompetent. It was accordingly directed that the first motion raising the preliminary objection be heard first and depending I on the outcome thereof the subsequent motion seeking an extension

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A of time to file the memorandum and record of appeal and leave to file supplementary record of appeal could then be heard.

After hearing the first motion to strike out the appeal, the Court held that failure to B extract a decree and to include it in the record of appeal in terms of Rule 89(2) of the Court of Appeal Rules was fatal making the appeal incompetent and was accordingly struck out. Regarding the other application by Counsel for the appellant for the extension of time to lodge the memorandum and record of appeal as well as to file a C supplementary record of appeal the Court held:

In the light of this ruling, (i.e. that the appeal is incompetent and was therefore struck out) it would now be pointless to entertain the application for extension of time. The D application for extension of time to file the memorandum and record of appeal presupposes that there is already a notice of appeal in existence. But the notice of appeal which brought into being the appeal which has just been struck out, disappeared with the striking out of the appeal. So that there is now a clean plate as it were with nothing on it. E If the appellant wishes to lodge a proper appeal he will have to start afresh by applying for an extension of time to give notice of his intention to appeal. But this Court has no jurisdiction to grant such extension. That jurisdiction is vested in the High Court under F section 11(1) of the Appellate Jurisdiction Act.

In my view, this is what Omar, J.A. had in mind when he refused to consolidate Civil Application No. 13/91 with Application No. 19/91 which seeks to save the notice of G appeal from being struck out as prayed in Civil Application No. 13/91. But even with these two

applications having been consolidated, I intend to deal with them on the lines adopted in Civil Appeal No. 34/88 quoted above. I will therefore start with Civil Application No. 13/91.

As indicated earlier, the applicant in this application is seeking an order that the notice H of appeal filed by the respondent be struck out, because some essential step in the proceedings has not been taken and/or has not been taken within the prescribed time as required by Rule 77 (1) of the Court of Appeal Rules 1979 which provides as follows: I

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A 77 - (1) An intended appellant shall, before, or within seven days, after lodging a notice of appeal, serve copies of it on all parties who seem to him to be directly affected by the appeal; but the Court may, on an exparte application, direct that service need not be effected on any person who took no part in the proceedings in the High Court. B

At the hearing of this application, Mr. Marando who appeared for the applicant, submitted that there were two essential steps which were not taken. First, he said, the respondents did not serve the applicant with the notice of appeal as required by Rule 77 C (1) quoted above. Secondly, he said that the respondents did not send to the applicant a copy of their letter applying for certified copies of the record, thus disqualified themselves from the benefits of the exception in Rule 83 (2) regarding the computation of time. In the circumstances, he said, the respondents should have filed D the memorandum of appeal by 19/4/91 i.e. within 60 days of their filing the notice of appeal.

Before proceeding further with this application, I think I should deal first with the question regarding its validity. This application was undoubtedly brought under the provisions of Rule 82 which provides as follows: E

82. A person on whom a notice of appeal has been served, may at any time, either before or after the institution of the appeal, apply to the Court to strike out the notice or the appeal, F as the case may be on the ground that no appeal lies or that some essential stop in the proceedings has not been taken or has not been taken within the prescribed time. (The emphasis is supplied).

In the present case, the application to strike out the notice of appeal was filed before G the applicant was served with the notice of appeal, thus making him unqualified to mount this application under the above quoted rule. In this connection Mr. Marando submitted, rightly in my view, in the light of the observations by the defunct East African Court of H Appeal in Osongo and another v Republic [1970] EA 170, that since at the time he was orally addressing the Court on the notice of motion, he had already been served with the notice of appeal, this application is valid under Rule 82. In the Osongo case, it was contended for the respondent that the application I

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was incompetent because it was filed before the application to the High Court. The A Court held at page 171 B:

We think that a motion is an oral application and therefore that it is made at the time when the applicant addresses the Court or judge, not when the notice of motion is filed. This B is borne out by the wording of the prescribed form of the notice of motion.

Indeed the word used in the Rule is "apply" not "file". Since therefore in this C application the applicant was served with the notice of appeal on 25/4/91, he was already served with the notice at the time he was addressing me on 30/7/92, and that therefore it comes within the provisions of Rule 82 and is accordingly valid.

Reverting now to the first of the steps which were not taken, Mr. Marando said that D he was served with the notice of appeal dated 14th February 1991 on 25/4/91. This Notice was lodged with the High Court on 19th February, 1991. Under Rule 77 (1) it should have been served within seven days from 19th February, 1991, i.e. by 27th February, 1991.

The respondents have conceded throughout that the notice of appeal which they E lodged with the High Court on 19th February, 1991, was not served on the applicant within seven days and that it was served two months later on 25/4/91. But Mr. Mbuya submitted on behalf of the respondents that there are sufficient grounds not to strike out the notice of appeal and for extending the time within which to serve it. He said that F the notice of appeal was not served on the applicant due to a mix up in his office. Mr. Mbuya then proceeded to explain this mix up. He said that on 14/2/91, he drafted the notice of appeal and indicated that copies were to be served on the applicant through his two advocates. On 18/2/92, he drafted a letter to the Registrar, requesting for G certified copies of proceedings and indicated that copies of the letter were to be sent to the applicant's advocates. This letter was referenced EHC/501/TeL/HCC 210/89 dated 18/2/91. The relevant envelopes were typed, but the mix-up occurred when it H came to putting the contents in them. Instead of putting in each envelope a copy of the notice and a copy of the letter, his secretary put in one envelope two copies of notices and in the other two copies of the letter. As it turned out, the envelope addressed to Marando & Co. contained the two copies of the notices. This envelope remained in I Mr. Mbuya's office undelivered until April. The other envelope addressed to Maira &

Co., had the two copies of the letter, but this according to Mr. Mbuya, was handed A by him personally to a clerk in the chambers of Maira & Co. for delivery to his employers. The clerk is Hamisi Dihoni. All this information is contained in affidavits I and II deposed to by Miss Sichalwe and Mr. Mbuya himself. But in his affidavit, Hamisi Dihoni stated that he was handed an envelope by a secretary in Mr. Mbuya's office B on 25/4/91 for delivery to Maira & Co and that this envelope contained a notice of appeal dated 14th February, 1991, and a letter reference No. EHC/301/TEL/HCC 210/89 dated 18th February, 1991, and that he delivered these documents to Mr. Maira of Maira & Co. Advocates. C

I will start with the non delivery of the notice of appeal. Rule 77(1) was not complied with due to mistake by Counsel. The question is whether this is sufficient reason. Mr. Marando submitted that the notice of appeal was not served on the applicant because of negligence and inaction on the part of his learned colleague, counsel nor the D respondents, and that this negligence and

inadvertence cannot excuse the non-appliance with Rule 77 (1). This Court has held on a number of occasions that lapses of a minor nature on counsel's part, may be excused, but where counsel's conduct amounts to negligence or inaction leading to non-appliance with a mandatory statutory E requirement, this Court will not be easily moved to condone the conduct. In this case, by Mr. Mbuya's own admissions, he seems to be guilty of negligence and inaction at two levels. Having prepared the notice of appeal and the letter applying for copies of proceedings timeously, it is really inexcusable that the documents were wrongly F placed in the envelopes and then left the envelope addressed to Mr. Marando lying in his office for over two months! Yet he knew or he is supposed to know the mandatory provisions of Rule 77 (1). Quite clearly, by this kind of conduct, counsel for the respondents was doing very little to protect the interests of his clients. In Civil Appeal G No. 9/84, Mrs. Grace Frank Ngowi v Dr. Frank Israel Ngowi, this Court rejected the contention by counsel for the applicant that he had not served the notice of appeal on the respondents because he had relied on the undertaking by a registry officer to serve the notice on the respondent which he failed to do and also that he had H inadvertently failed to despatch a copy of the application and a copy of the record to the respondent. The appeal was struck out.

Regarding the copy of the letter applying for copy of proceedings two copies were put in an envelope addressed to Mr. Maira, which never reached him in February or by I the time they

filed the notices of motion for an order to strike out the notice of appeal. This A requirement is governed by Rule 83.

83 - (1) Subject to the provisions of Rule 122, an appeal shall be instituted by lodging in the appropriate registry, within sixty days of the date when the notice of appeal was lodged - B

(a) a memorandum of appeal, in quintuplicate;

(b) the record of appeal in quintuplicate;

(c) the prescribed fee; and

C (d) security for the costs of the appeal;

save that where an application for a copy of the proceedings to the High Court has been made within thirty days of the date of the decision against which it is desired to appeal, there shall, in computing the time within which the appeal is to be instituted be D excluded such time as may be certified by the Registrar of the High Court as having been required for the preparation and delivery of that copy to the appellant.

E (2) An appellant shall not be entitled to rely on the exception to sub-rule (1) unless his application for the copy was in writing and a copy of it was sent to the respondent.

Mr. Mbuya stated in his affidavit and at the hearing that he personally handed the F envelope containing the copy of the letter to Mr. Maira's clerk one Hamisi Dihoni for delivery to his employers, and that when he saw the contents of paragraph 3 of Dihoni's affidavit, he confronted him and Dihoni informed him that the particulars in his affidavit which are handwritten had not been inserted by him and that he also recalled the fact G of his handing over to him the envelope containing the copy of the letter ref. No. EHC/501/TEL/CC 210/89/91

dated 18/2/91. This was all the depositions stated about the respondents' compliance with Rule 83 (1), namely that a copy of the letter applying for a copy of proceedings was sent to the respondent. But as Mr. Mbuya H undoubtedly knows, all this is hearsay. He should have filed an affidavit by Hamisi Dihoni confirming their alleged conversation. In a parallel case, Civil Application No.5/87 Kigoma Ali Malima v Abbas Yusuf Mwingamo, the applicant applied to have the appeal filed by the respondent struck out in terms of Rule 82 on the ground I that although the respondent had filed the memorandum and record

of appeal in time, he failed to serve the documents on the applicant. In his reply, A counsel for the respondent filed an application also by way of motion for an order that he be granted an extension of time to serve a copy of the memorandum and record of appeal on the applicant. In support of his application for extension of time, counsel stated that on 27/11/86 he had handed the documents to a messenger in his office B one Iddi Selemani Sengumba with instructions to deliver it to counsel for the applicant. He was thus surprised to learn through applicant's application to strike out the appeal that apparently the memorandum and record of appeal had not been served on applicant's counsel. C

This Court held that in the absence of an affidavit by Sengumba that he had tried and failed to serve applicant's counsel, that was no reason let alone sufficient reason before the Court for the failure by respondent to serve the applicant with the memorandum and record of appeal in terms of Rule 77 of the Rules. Hence the application for extension D of time was refused and the appeal was struck out. This is exactly what Mr. Mbuya should have done in this case, namely file an affidavit by Hamisi Dihoni. However, Mr. Mbuya explained his failure to file Dihoni's affidavit, saying that under pressure from his employers, that is Maira and Company Advocates, Hamisi Dihoni was most unwilling E to make an affidavit to contradict what he stated in paragraph 3 of his affidavit. Apparently there was some correspondence on this aspect of the matter between Mr. Mbuya's Chambers and these of Maira & Company which ended with Maira & Co. F vehemently denying the allegation and added that they could not be involved in conduct which was illegal. This letter is annexure R6. But at the hearing of these applications, Mr. Maira submitted that at an earlier hearing, they had brought Hamisi Dihoni along so that Mr. Mbuya could cross-examine him on his affidavit if he so wished, but that Mr. Mbuya had not taken up the offer. Even subsequently, Mr. Maira added, Mr. Mbuya G never thought it necessary to have Hamisi summoned for cross examination on his affidavit.

Mr. Mbuya also tried to prove that the letter of 18/2/91 was sent to counsel for the applicant by pointing out that the letter referred to in paragraph 3 of Dihonis' affidavit, H was not the one he sent on 25/4/91, but the one which was sent in February and that therefore the fact that the applicant referred to this letter, is proof that it reached him in February by the hand of hamisi as he claims. Mr. Maira answered this quite simply by pointing out that was the letter which they received with the notice of appeal on I 25/4/91 and that it was

none of their business that it was not the letter Mr. Mbuya had intended to send to A them.
Quite clearly Mr. Mbuya must take all the blame. He knew and he knows the importance of complying with Rule 83 (2) to enable him enjoy the protection under the exception clause in sub-rule (1), yet he made no attempt to keep a record of the fact B that he had handed the letter to Maira's clerk. As Mr. Marando correctly stated, Mr. Mbuya could have achieved this by one of two ways. He could have used a despatch book or made Hamisi acknowledge his receipt of the envelope. This would have been enough proof that the copy of the letter was sent to the applicant was required by C Rule 83 (1) and that therefore he is covered by the exception in that sub-rule. At the lowest Mr. Mbuya could have mitigated the effects of Dihonis affidavit by cross-examining him. The Registrar of the High Court must therefore have issued the certificate under a mistaken belief that the respondent was entitled to it. As matters D stand then, the respondent is not covered by the exception in sub-rule (1) because although he applied for the copy of the proceedings in writing within thirty days, he did not send the copy of the letter to the applicant. Since on my finding the respondents failed to take an essential step in the proceedings, in that they did not, through E negligence and/or inaction serve a copy of the notice of appeal on the applicant as required by of Rule 77 (1), this notice of appeal must be and is hereby struck out. Since also on my finding, the respondents did not send to the applicant a copy of their letter in which they applied for a copy of the proceedings, as required by Rule 83 (2) they are F not covered by the exception in sub-rule (1) and that therefore the Registrar issued them with a certificate under sub-rule (1) while labouring under a mistake of fact. Consequently the period available to the respondents in which to institute the appeal, was sixty days. G
With these findings, it is not strictly necessary for me to consider and determine Civil Application No. 29/91 in which the applicants are seeking an extension of time to serve the respondent with the notice of appeal, namely up to the date the respondent received it. I say it is not strictly necessary because in the reference which ordered H consolidation, the Court appears to have accepted the argument in favour of consolidation to the effect that "the two applications were essentially two sides of the same coin, that if for example, the single judge decided that the present applicant had indeed failed to take essential steps and so strike out the notice, he could not then turn I round in the other application and permit the

present applicant to comply with all the formalities and vise versa." Nevertheless with A this in full view, I intend to deal with application No. 29/91 on its merits.
As indicated earlier on in this Ruling, this application was launched by the applicants essentially to save their notice of appeal dated 14/2/91 from being struck out. The basic B position of this court in such matters was clearly set out in Civil Appeal No. 34/88 set out earlier. The power to extend the various periods in the Rules is provided in Rule 8 and this court had the occasion in Civil Application No. 27/87 Dar es Salaam City Council v Jayantlal Pragubhai Rajan to make general comments on the exercise C of the powers under that Rule. The court stated at page 4 of the typed judgment:

It is now well established that under this rule this court has wide powers to extend the time for the doing of any act in terms of the rule, provided that sufficient reason is D shown. However the problem often arises as to what amounts to sufficient reason.

The court then proceeded to state what amounts to sufficient reason and stated at E page 12:

What is discernible from the applicants' affidavit and the submissions by counsel was that the delay was actually due to lack of diligence. A good instance of this is afforded by the F claim that the applicant, having access to the Order of the Chief Justice at the Court of Appeal registry on 23/6/86 did not bring the application because the information was unofficial. Quite clearly that was no evidence of diligence in pursuing the matter. Time and G again the court has stressed the need to comply with the court rules the purpose of which is to provide a timetable for the conduct of litigation. The court's discretion under Rule 8 to extend the time fixed for doing an act is one to be exercised judicially. No doubt the decision whether or not to exercise the discretion in favour of the applicant will depend H on the facts and circumstances of each individual case, but one of the important consideration influencing that decision is whether the application was brought promptly. The inordinate delay in the instant case is clearly a factor which operates against the I exercise of the discretion in favour of the applicant, the absence of any or

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MFALILA JA

A valid explanation for the inordinate delay and complete lack of diligence are yet other factors operating in the same directions.

In present application, the failure to serve the notice of appeal was not only due to B negligence and inaction on the part of counsel for the applicants, but the application itself for the extension of time was brought as a saving measure, it was filed in response to another application seeking to strike out the very notice of appeal the applicants were frantically seeking to save from the axe. This application is therefore only a reaction, C one cannot in these circumstances say that the application was promptly brought on sound reasons. There is another difficulty facing this application. Even if this application to extend the time in which to serve the notice of application on the respondent were to be granted, the applicants will still be faced with the problem of instituting the appeal D under Rule 83(1), in that the 60 day period seems to have run out. There is no application seeking to extend the 60 day period in which to institute the appeal by lodging in the registry, a memorandum of appeal, the record of appeal, the prescribed fee and security for the costs of the appeal. Those documents appear to have been E filed on 3rd June 1992 more than a year after the due date.

Mr. Mbuya advanced two other reasons for this court to exercise its discretion under Rule 8 and order extension of time. He said that the intended appeal if allowed to take off, has overwhelming chances of success because of the exceptional circumstances F present in the case. He elaborated on this saying that the learned judge's order refusing an adjournment and his award of the judgment on the counter claims were against the rules of natural justice.

With regard to the claim that the intended appeal has overwhelming chances of G success, the record shows that the suit was dismissed and judgment entered on the counterclaim in default.

The story narrated at the hearing of this application, is typical of what appears to be Mr. Mbuya's style of doing things. He left the whole thing up to the very last moment, unfortunately his client failed to arrive in Dar es Salaam, hence Mr. H Mbuya could not file a defence as ordered by the court. With a little more diligence and application, Mr. Mbuya could have managed to file the defence to the counterclaim by the appointed day. This is so particularly when the amount at stake is considered. I However, likelihood of the intended appeal succeeding, is not in itself sufficient to make this

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court exercise its discretion in favour of the applicant. Rules of court were created to A act as vehicles to enable this court to dispense justice between parties, and the court's task in this direction is made easier if the rules are complies with. The general rule therefore is that this court will lean towards strict compliance with the rules, only to depart from this general rule in cases where it is clear that strict application would not B be in the interests of justice. In such cases, discretionary powers provided in rules such as Rule 8 would be brought into play. As this court remarked in Civil Application No. 20/87 quoted earlier, the purpose of the court rules is to provide a timetable for the conduct of litigation. In this application, this timetable states that by the time the C applicants filed this application, they were deemed under rule 84 to have withdrawn their notice of appeal. Very good reasons other than negligence and inaction must be firmly established before this timetable can be disturbed. There are neither good reasons nor exceptional circumstances in this case to warrant the disturbance of the timetable D by which litigants are supposed to conduct their affairs.

For the totality of all these reasons, this application to extend the time within which to serve the notice of appeal fails and it is dismissed with an order for costs in favour of D.P. Valambhia the applicant in Civil Application No. 13/91 and respondent in Civil E Application No. 29/91.

F Appeal dismissed.

1992 TLR p259

G

[zRPz]I.S. MSANGI v JUMUIYA YA WAFANYAKAZI AND WORKERS DEVELOPMENT CORPORATION 1992 TLR 259 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Makame JJA, Kisanga JJA, Omar JJA

26th August, 1992 H

Flynote

Tort - Defamation - Defence of qualified privilege - Publication to a person not having corresponding interest and duty to receive the publication - Whether defence available

Labour Law - Employment - Wrongful termination - Employee's right to be heard before I termination.

1992 TLR p260

-Headnote

The appellant sued the respondents in the High Court for defamation and wrongful A termination of employment. The basis of his suit for defamation was that a defamatory statement relating to him was published to persons not having corresponding interest and duty to receive the publication. The defamatory statement was contained in a probe B team report which instead of being published to the general council of JUWATA which had ordered the probe was published to Kamati ya Usimamizi ya Baraza Kuu (KUBK) and the board of directors of the Workers Development Corporation (WDC) of which he was general manager. And the basis for his complaint against wrongful C termination was that he was not given an opportunity to be heard by the body which terminated his employment. KUBK did give him an opportunity to be heard and in the end recommended that the appellants employment be terminated and the board of directors of W.D.C. terminated his services without giving him an opportunity to be heard. The trial court found the complaints to be baseless on the following grounds: D (a) that the respondents were availed the defence of qualified privilege; and (b) that the appellant was afforded an opportunity to be heard by KUBK. On appeal to the Court of Appeal.

Held: (i) Where a person raises the defence of qualified privilege on the ground that E he had a duty to make the offending statement it must further be shown that the statement was made in good faith and that the person to whom it was made had a corresponding interest and duty to receive it; F

(ii) the report containing defamatory statements was ordered by the general council of the first respondent and was expressly required to be submitted to that body. Publication of the report to members of KUBK when they were not supposed to receive it was wrong;

G (iii) it was necessary to afford the appellant the opportunity to be heard by the body which ultimately decided his fate i.e. the board of directors, because there can be no guarantee that given that opportunity his defence before the board of directors would necessarily be the same as his defence before the probe team.

Case Information

Appeal allowed. H

[zJDz]Judgment

Makame, Omar and Kisanga, JJ.A.: The appellant sued the first respondent, JUMUIYA YA WAFANYAKAZI TANZANIA (JUWATA), for defamation, and in I the same plaint he also sued the second respondent, the Workers Development

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MAKAME JJA, OMAR JJA, KISANGA JJA

Corporation (W.D.C) for wrongful termination of his employment. The second A respondent in a counter-claim sued for unrefunded loans which the appellant had obtained from the said respondent with or without authorization. The High Court in which the action was brought dismissed both the claim and the counter-claim and made an order for costs against the appellant. The appellant is now appealing, but the B second respondent has not appealed against the dismissal of its counter-claim.

The facts of the case may be stated briefly as follows: The appellant was employed by the W.D.C. as its general manager. As part of his duties, the appellant prepared and C submitted a report of the W.D.C. and its subsidiary companies at the annual meeting of the general council of JUWATA: it is the general council of JUWATA, consisting of two to three hundred members, which supervises the affairs of the W.D.C. As the appellant was trying to present his report before the general council, members of the council felt D that the report involved certain inadequacies or unsatisfactory matters which made it necessary to appoint a probe team of seven members to examine the report and submit their findings to the general council at its next meeting. After the report of the probe team was prepared it was presented to the Secretary-General of JUWATA who, E however, submitted it, not to the general council as had been directed, but to the Kamati ya Usimamizi ya Baraza Kuu (KUBK) consisting of 20 to 30 members, and also to the Board of Directors of the W.D.C.

Upon receiving the probe report, the KUBK required the appellant to appear before F it to defend himself against allegations made against him in the report and he did so. In addition to the appellant's defence the KUBK also received from the board of directors of the W.D.C. their comments on the probe report. After that the KUBK proceeded to appoint a select committee to scrutinize further the probe report in the light of the G appellant's defence and the comments by the board of directors of the W.D.C., and then report back to the KUBK. The select committee accordingly submitted its report and after discussing and adopting it the KUBK recommended the termination of the appellant's employment; acting on that recommendation, the board of directors of the H W.D.C. accordingly terminated the appellant's employment.

The appellant's claim for defamation was essentially based on the publication of the probe report to the bodies of persons other than that which had ordered or directed such probe. And the basis for his complaint against wrongful termination was that he I was given

no opportunity to be heard by the body which terminated his employment. A

The trial judge dismissed the appellant's claim for defamation on the ground that the first respondent had the defence of qualified privilege. He dismissed the claim for wrongful termination on the ground that such termination was justified in the light of the B appellant's proved or admitted misconducts.

At the hearing of this appeal the appellant was represented by Mr. Lukwaro while Mr. Muccadam appeared for the respondents. Mr. Lukwaro filed a total of eight grounds of appeal challenging the dismissal of his client's suit by the High Court and the failure by C that Court to award him costs after dismissing the counter-claim by the second respondent.

The learned judge found that the report by the probe team did contain statements which were defamatory of the appellant. When dealing with that issue he said inter alia: D

> There is no doubt that some of the publication is defamatory. Matters like adultery imputations and fraud allegations are certainly defamatory.

We are satisfied that this finding was quite justified. There was ample evidence to E support it. However, he misdirected himself by saying that the probe team submitted its report to the

general council of JUWATA. For, there was abundant evidence of the appellant and the defence witness, one Mr. Mashashi, that the report by the probe F team was submitted to the KUBK, not to the general council of JUWATA.

As stated earlier, the learned judge found that the first respondent had the defence of qualified privilege available to it. This was so because, in his view, "there was a public G duty to investigate into the activities of the W.D.C. and its general manager". He took the view that once there was that duty then in the absence of any malice, and indeed the appellant conceded the absence of any malice on the part of members of the probe team, the occasion was one of qualified privilege. H

It was established by the evidence that the probe team was appointed by the general council of JUWATA to probe into the affairs of the W.D.C. including those of the appellant as its general manager, and report its findings back to the general council of JUWATA. As already pointed out, however, the report of the probe team was I submitted not to the appointing authority, the general

council of JUWATA, but to the KUBK. It is quite apparent that the general council A of JUWATA and the KUBK are two different bodies. The former has two to three hundred members while the latter comprises 20 to 30 members only. The two bodies also differ in their functions. The general council of JUWATA supervises the affairs of the W.D.C. while the KUBK is under the general council and deals with matters of B day-to-day administration.

Where a person raises the defence of qualified privilege on the ground that he had a duty to make the offending statement it must further be shown that the statement was made in good faith and that the person to whom it was made had a corresponding C interest and duty to receive it. Admittedly in the instant case the probe team made the defamatory statements in the performance of the duty imposed on it by the general council of JUWATA, and it was common ground that these statements were made without malice. But the question is: What corresponding interest and duty did the D KUBK have to receive the report? The report was ordered by the general council and was expressly required to be submitted to that body. The circumstances leading to the KUBK receiving the report are not at all apparent. The KUBK was not shown to be the disciplining authority of the appellant, and certainly it was not the authority vested E with the power of appointing or terminating the services of the appellant; on the evidence such powers were vested in the board of directors of the W.D.C. It seems plain, therefore, that the probe report was wrongly published to members of the KUBK when they were not supposed to receive it i.e. when they had no corresponding F interest and duty to receive it, and to that extent the defence of qualified privilege cannot succeed.

As regards the issue of terminating the appellant's employment, there was clear evidence that this was done by the board of directors of W.D.C. The appellant G concedes that this was the proper authority to exercise that power, but his complaint is that he was afforded no opportunity to be heard by that body before the latter terminated him. In dismissing the appellant's claim the trial judge took the view that the appellant's termination was justified in the light of the

appellant's proved or admitted H misconducts, such as the loaning of money to himself without authority. With due respect to the learned judge, however, this did not do away with the need to afford the appellant the opportunity to be heard. For one thing, all along the appellant was protesting his innocence against the allegations which were made against him. His I admission of some of the allegations were invariably accompanied by explanations

designed to absolve him. In those circumstances if the disciplining authority was A minded to impose a sanction on him, as indeed it did, it was right and proper, in accordance with the principle of natural justice, to hear him before condemning him. Indeed, even if his admissions of the allegations before the probe team were seemingly unequivocal, we think that it was still necessary to afford him the opportunity to put B up his defence before the board of directors although it would necessarily be the same as his defence before the probe team.

Mr. Muccadam, learned counsel for the respondents, contended before us and also in C the High Court that the appellant was duly afforded the opportunity to be heard when he was called upon to defend himself before the KUBK. With due respect to the learned counsel, however, this argument cannot be sustained. First, the KUBK was not the authority which imposed the sanction being complained against. The sanction was D imposed by the board of directors of the W.D.C.; the appellant's appearance therefore ought properly to have been before that body. What is more, and this seems to be even more serious, the evidence shows that the substance of the appellant's defence was not placed before the board of directors. The Deputy Secretary-General of JUWATA, E Mr. Elias Mashashi stated in his evidence for the defence that the report of the KUBK (Ex. D1) was not submitted to the board of directors of the W.D.C. This means that the board of directors terminated the appellant's employment purely on the strength of a bare recommendation by the KUBK, and that was totally wrong. F

We are satisfied that the learned trial judge wrongly dismissed the appellant's claims for defamation and for wrongful termination of his employment.

The second respondent's counter-claim was dismissed but nothing further was said about. The general rule in civil cases is that costs follow the event. That is to say the G successful party is entitled to recover his costs unless there are grounds for ordering otherwise. In this case the appellant was the successful party, as far as the counter-claim was concerned, and according to the general rule he was entitled to recover his costs. H The trial judge gave no reason, and we could find none, for departing from the general rule. On that account we find that the appellant was wrongly denied his costs following the dismissal of the counter-claim against him.

In the result we allow the appeal. The decision of the High Court is set aside, and instead thereof we enter judgment for the I

appellant as prayed in the plaint. We award shillings 200,000/= damages for the A defamation and shillings 50,000/= for the wrongful termination of employment. The appellant shall have his costs both in this court and in the Court below, the latter to include costs in respect of the dismissed counter-claim.

B Appeal allowed.
1992 TLR p265
C
[zRPz]ALLY HASSAN MPAPATA v REPUBLIC 1992 TLR 265 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mkude J

7 September, 1992
Flynote
Criminal Practice and Procedure - Pleas - Plea of autrefois acquit - Whether available D where previous proceedings have been declared null and void
-Headnote
Consent for prosecution of an economic offence was given by a person who was not authorized to do so. This point escaped the attention of the trial court, the trial E proceeded and the accused was acquitted for insufficiency of evidence. The D.P.P. appealed to the High Court. Preliminary objections were raised one of which was that he was not competent to do so. The High Court upheld this objection and declared the proceedings in the lower court null and void. The Court did not stop there. It F considered the evidence adduced at the trial, upheld the acquittal of the accused and dismissed the appeal by the D.P.P.
The D.P.P. then prepared a fresh charge whose particulars of offence alleged the same offence and was word for word similar to the charge in the previous trial declared to G be a nullity by the High Court. Consent for prosecution was duly given.
The accused persons, when required to plead, raised the plea of autrefois acquit. The trial magistrate ruled that the defence of autrefois acquit was not available to the accused. On appeal to the High Court. H
Held: The plea of autrefois acquit is not available to an accused person whose previous trial has been declared null and void.
Case Information
Appeal dismissed. I
1992 TLR p266
MKUDE J
Matupa, for the respondent A
Rutabingwa, for the appellant
Editorial Note: The proper procedure which the D.P.P. should have followed in this matter was to appeal to the Court of Appeal and not to re-charge the accused person B as he did in this case.
[zJDz]Judgment
Mkude, J.: An interesting point of law arises in this appeal: Is the plea of autrefois acquit available to an accused person whose previous trial has been declared null and C void? The

question as framed may be an oversimplification but that is the essence of the point calling for decision in this case. The appellant, Ally Hassan Mpapata, was charged with unlawful possession of Government trophies c/s 67 (l) of the Wildlife Conservation Act, 1974 read with section 59 and paragraph 16 (d) of the Economic and D Organized Crime Control Act, 1984 in the district court of Kilosa. The charge alleged that on 2/7/89, at Msowero Village in Kilosa district he was found in possession of 449 elephant tusks valued at Shs.28,540,000/= the property of the Government. This is an economic offence for which the consent of the Director of Public Prosecutions E (hereinafter the DPP) is necessary before a trial in respect of it can be commenced. This is in accordance with the provisions of section 26 (l) of the Economic and Organized Crime Control Act. Subsection (2) of the same section empowers the DPP by notice published in the Gazette to delegate some of his powers in this regard to State F Attorney by specifying economic offenses which require his personal consent and those that can be consented to by State Attorneys. By Government Notices N. 191 of 1984 the DPP reserved to his own consent the prosecution of offences specified in part I of the schedule to the Notice and delegated to State Attorney-in-charge of the zone or G region in which the economic offence took place the power to consent to the prosecution of offences specified in Part II of the Schedule. Offences under the Wildlife Conservation Act fall under Part II of the Schedule and hence fall under the delegated power. The problem arose in this case because the State Attorney who purported to H consent to the prosecution of the offence was not a State Attorney-in-charge as required by the Government Notice.

This point escaped the attention of the trial court and so the trial proceeded and at the conclusion of the trial the accused was acquitted for insufficiency of evidence. The I DPP appealed against the acquittal. In the High Court (before Lugakingira J.) arguments

on the merits of the appeal were preceded by two preliminary objection. The first A objection question the competence of the appeal itself. The court held that the appeal was competent and overruled the preliminary objection. The second objection challenged the regularity of the proceedings in that the prosecution commenced on the consent of a person not competent to give such consent. The court held that the B proceedings were a nullity and issued a declaration to that effect. The court then went on to consider the evidence adduced at the trial and came to the conclusion that the learned trial magistrate was justified in acquitting the accused and dismissed the appeal by the DPP. C

The DPP then prepared a fresh charge against the appellant and two others, annexed to it his consent for the prosecution as well as his certificate conferring jurisdiction upon a district court to an economic crime case and filed it in the District Court of Kilosa. The charge and particulars of offence alleged the same offence and was word for word D similar to the charge in the previous trial declared to be a nullity by Lugakingira J. While the case was still pending at the Kilosa District Court the appellant filed an application for bail in the High Court, and when the file was pleased before Lugakingira J. for hearing he declined to hear it and gave his reasons as follows: E

Court: The arrest and re-arraignment of the applicant rises either from a misunderstanding or a disregard of the judgment in which I upheld his acquittal. I cannot embark upon hearing this application without appearing to be a judge in my own cause. F The matter should be placed before another judge.

The authorities obliged and placed the matter before Kyando, J. who proceeded to hear the application and ordered that the matter should be handled by the trial court since G it has been given jurisdiction to try the case under the certificate issued by the DPP. Before leaving the matter Kyando J. made the following observations:

H Thirdly it does certainly not appear to me that Lugakingira J. only nullified the first proceedings in this case. As shown above already he considered also the evidence in the case and was satisfied that even if he were to hold that the proceedings were valid he would still have upheld the acquittal on the evidence - which was weak and could not I sustain a conviction.

1992 TLR p268

MKUDE J

A On all these above points, it is clear that to all intents and purposes, the appeal by the Director of Public Prosecutions in the first proceedings was dismissed on its merits. The reinstitution of the case therefore amounts to an abuse of the process of the courts. However, as is clear, I am here dealing with a bail application. The matter whether the B applicant has already been acquitted in the case is to be properly dealt with by the district court which is trying him. He may deem it necessary to plead autrefois acquit before that court. (emphasis supplied.) C

Armed with the observations of two judges of this court, Mr. Rutabingwa, learned advocate, appeared before the District Court at Kilosa and pleaded autrefois acquit. The learned Resident Magistrate who presided was not impressed by this plea; he rejected it and said: D

I totally concur with Mr. Kamba that the appeal was not heard on merit. The defence of autrefois acquit does not arise in this case. The fact that Hon. Lugakingira J. did not order for retrial of the case did not mean that the Prosecution could not recharge the accused. E

It is the opinion of this court that the acquittal as entered by Hon. Lugakingira J. was if the proceedings were valid but they were not VALID AND HAD NULLIFIED them at the beginning of his judgment. F

The application for defence of autrefois acquit for 1st accused is dismissed. The case is to proceed as scheduled.

The appeal before me now is against this last order of dismissal. Mr. Matupa, learned G State Attorney who appeared for the Respondent/Republic, raised the question whether the order rejecting the plea of autrefois acquit is appealable. He argued that if the plea is accepted by the court and upheld then it is final and appealable immediately but if it is rejected then it is merely interlocutory and therefore not immediately appealable. This H is an interesting point very much like that covering the submission of no case to answer but I find it unnecessary to decide in this appeal and so I refrain from expressing any opinion on it, if only to learn a lesson or two from the observations of my two learned others.

Mr. Rutabingwa faithfully referred to and relied on the observations of Lugakingira J. I both in his judgment and in the
1992 TLR p269
note he wrote declining to hear the bail application, as well as the observation of A Kyando J. reproduced above in which he regarded the action of the DPP in filing fresh charges against the appellant and his two friends as an abuse of the process of the courts. While I have every sympathy for his arguments I am unable to accept them. One cannot eat one's cake and have it. Once Lugakingira J. disagreed with Mr. Matupa, B learned State Attorney, on the power of Miss Korosso to consent to the prosecution of the appellant, and declared the trial null and void then, ipso facto, there was no "acquittal" for his lordship to uphold. This is so because the purported acquittal is a necessary part of the very trial that has been declared a nullity. It could not, and, like C those by Kyando J. in the ruling on the application for bail, were not at all necessary for determination of the appeal.
For the above reasons this appeal fails and I dismiss it.
D Appeal dismissed.
1992 TLR p269
E
[zRPz]REPUBLIC v KENNETH KIZITO 1992 TLR 269 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mkude J

11 September, 1992
Flynote
Criminal Practice and Procedure - Conviction - Of robbery - Whether in addition a F conviction of assault causing actual bodily harm is proper - Criminal Procedure Act, s. 300(1)
Criminal Practice and Procedure - Sentencing - Accused below 16 years of age - Law applicable when sentencing
-Headnote
The accused aged 15 years was charged with and convicted of robbery. The Court G also found that the accused was guilty of assault causing actual bodily harm by invoking section 300(i) of the Criminal Procedure Act. The accused was sentenced to 15 years imprisonment for the offence of robbery in accordance with the Minimum Sentences H Act and six months imprisonment for the offence of assault. The case file was forwarded to the High Court for revision.
Held: (i) The offence of robbery of which the accused was convicted consisted in I stealing the money and the use of violence on the victim
1992 TLR p270
MKUDE J

in furtherance of the theft. It was wrong for the trial court to invoke the provisions of A section 300 (1) of the Criminal Procedure Act, 1985;

(ii) since the accused was below 16 years when he was convicted the learned District Magistrate erred when he imposed a sentence of fifteen years imprisonment B under the Minimum Sentences Act, 1972. The applicable law is the Children and Young Persons Ordinance.

Case Information

Order accordingly.

Kamba, for the republic. C

[zJDz]Judgment

Mkude, J.: Keneth Soul Kizito is a young man aged fifteen in 1990 when he was arrested an charged with robbery c/s 285 of the Penal Code. He was found guilty as D charged and sentenced to fifteen years imprisonment on 10/4/91 by the District Court of Ilala at Kisutu. The court also found the accused guilty of assault causing actual bodily E harm and sentenced him to six months imprisonment. The court purported to act under section 300 (1) of the criminal Procedure Act in entering a conviction of assault causing actual bodily harm as there was evidence that the accused stabbed P.W.2 with a knife while committing the robbery and stealing Shs.700/= from the witness.

As the stabbing of P.W.2 was done in order to retain the sum of Shs.700/= the F accused had stolen one offence only was committed and not two. The offence of robbery of which the accused was convicted consisted in stealing the money and the use of violence on the victim in furtherance of the theft. It was therefore wrong for the trial court to invoke the provisions of section 300 (1) of the Criminal Procedure Act. That section provides as follows: G

300-(1) when a person is charged with an offence consisting of several particulars, a combination of some only of which constitutes a complete minor offence and such combination is proved but the remaining particulars are not proved he may be convicted of H the minor offence although he was not charged with it. (emphasis supplied).

It is clear from these provisions that the offence of assault causing actual bodily harm could stand alone only if the evidence was not sufficient to establish the offence of I robbery, as for example, where

1992 TLR p271

the offence of theft was not proved. But in the present case there was evidence to A prove both the theft and the assault in furtherance of the theft. The combination of these two constitutes the offence of robbery. For these reasons I quash the conviction of assault causing actual bodily harm and set aside the sentence of six months imprisonment. B

The offence of robbery was proved and the conviction is well founded. However, since the accused was below sixteen years when he was convicted the learned District Magistrate erred when he imposed a sentence of fifteen years imprisonment under the Minimum Sentences Act, 1972. The applicable law is the children and Young C Persons Ordinance. In the result the sentence of fifteen years imprisonment is hereby set aside. The accused/appellant is to be sent

back to the District Court of Ilala at Kisutu for sentence is accordance with the Children and Young Persons Ordinance. It is so ordered. D
Order accordingly.
1992 TLR p271
E
[zRPz]REPUBLIC v PALANGYO KAANANDUMI 1992 TLR 271 (HC)

Court High Court of Tanzania - Arusha
Judge Nchalla J

14 September, 1992 F
Flynote
Criminal Practice and Procedure - Charges - Dismissal - Order dismissing charge and acquitting accused made before end of prosecution case - Whether proper - Effect. G
-Headnote
After the prosecution had informed the Court that investigations of a case were complete they applied for a hearing date. When on two dates the prosecution could not go on with the hearing the magistrate ruled that the accused had no case to answer and acquitted him. On revision. H
Held: (i) Before a subordinate court can invoke the provisions of section 230 of the Criminal Procedure Act in dismissing a charge and acquitting the accused, it must first hear evidence from the prosecution side and at the close of that evidence, the court I shall make a ruling supported by legal reasons to the effect that the
1992 TLR p272
NCHALLA J
evidence in question has established no case sufficiently to require the accused person A to enter his defence;

(ii) the order of the presiding District Magistrate in acquitting the accused under section 230 of the Criminal Procedure Act, 1985 was premature, hence quite wrong and invalid.
Case Information
Order accordingly. B
Mlambo, for the republic
[zJDz]Judgment
Nchalla, J.: The accused one Pallangyo s/o Kaanandumi had been charged before C Monduli District Court with a traffic offence in respect of reckless driving a motor vehicle on a public road c/ss 42(l)(c) and 63(l)(b) of the Road Traffic Act No. 30/1973. The charge facing the accused was filed in the trial subordinate court on 5/8/91, and D on the same day the said charge was read over and explained to the accused who pleaded not guilty to it. On that day the Public Prosecutor informed the court that the investigation of the case was complete, and applied for a hearing date. The presiding magistrate Mr. A.A. Ngowi, learned Senior District Magistrate, fixed the case for hearing on 22/8/91, and accordingly adjourned the case. E

The record, however, shows that the case was called up for hearing on 16/8/91 instead of the 22/8/91 to which it had earlier been fixed. No reason was recorded for this abrupt change of the date of hearing.

Be that as it may, on 16/8/91 the Public Prosecutor reported to the court thus: F

> I have no police file as the case is not shown in the case list.

It seems to me that the Public Prosecutor's submission on 16/8/91 was genuine and G was well founded as, indeed, the case was not scheduled for hearing on that date, and the Republic was not expected to have summoned its witnesses to appear to testify before the court on that date, which was not a hearing date for the case. Naturally, the H Public Prosecutor did not have the police file with him on that day in respect of the case.

Mr. Ngowi, learned Senior District Magistrate, adjourned the case for hearing on 6/9/91, but did not make any order revoking his previous order which he had made to the effect that the case be heard on 22/8/91. This means that there were now two I subsisting but conflicting orders as to the date the case was supposed to come

up for hearing. There was the order that the case be heard on 22/8/91, and the A second order that the same case be heard on 6/9/91. This was a confusion for which the presiding District Magistrate (Mr. Ngowi) was squarely to blame.

The case was not called up for hearing on 22/8/91, but was called up on 6/9/91 in consonance with the second order of the court as follows: B

> P.P.: I have no police file.

Then the court made the following order which has given rise to these revisional C proceedings:

> Court: The case is for hearing. No application for witness summons made to court. The witnesses are resident of Monduli. There are no good reasons as to why should the D prosecution not to proceed with the case as per section 223 C.P.A.
>
> In this respect, the accused has no case to answer and as such he is hereby acquitted under Section 230 Criminal Procedure Act. E
>
> Right of Appeal explained.
>
> Sgd. Ngowi, A.A. SDM. F
>
> 6/9/91.

From the above synopsis of the proceedings in this case, it is an elementary part of criminal procedure for one to realize that the order of the presiding District Magistrate G in acquitting the accused under section 230 of the Criminal Procedure Act, 1985 was basically premature, hence quite wrong and invalid. What the presiding magistrate did in this case was quite prejudicial, and therefore quite injudicious. The provisions of section H 230 of the Criminal Procedure Act, 1985 cannot be invoked in a situation where there has been no hearing of the case at all. The case before the trial court had not commenced hearing at all; no any evidence had been adduced from either side. Under those circumstances, the trial court could not act

under section 230 of the Criminal Procedure Act, 1985 in dismissing the charge and acquitting the accused. The I provisions of section

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NCHALLA J

230 C.P.A., are quite simple, clear, and straightforward; they require no legal A qualification to interpret and understand them. They are those:

230. If at the close of the evidence in support of the charge, it appears to the court that a B case is not made out against the accused person sufficiently to require him to make a defence either in relation to the offence with which he is charged or in relation to any other offence of which under the provisions of sections 312 - 321 inclusive of this Act, he is liable to be convicted, the court shall dismiss the charge and acquit the accused C person. (underlining mine).

It is evident from the underlined part of the above quoted section that before a subordinate court can invoke the provisions of that section in dismissing a charge and acquitting the accused, it must first hear evidence from the prosecution side, and at D the close of that evidence, the court shall make a ruling supported by legal reasons to the effect that the evidence in question has established no case sufficiently to require the accused person to enter his defence.

So, the presiding Senior District Magistrate in this case wrongly applied the E provisions of section 230 C.P.A. that was a serious misdirection which is an error of law which involved a miscarriage of justice on the prosecution side. Consequently, the dismissal of the charge and the acquittal of the accused are wrong and invalid, the same F are hereby quashed and set aside. It is further ordered that the case before the subordinate court be heard de novo before another magistrate of competent jurisdiction, preferably a resident magistrate. The accused be arrested forthwith and be produced before the trial subordinate court at Monduli District Court to answer the G charges for which he was wrongly acquitted. The record of the trial court be remitted back to it together with this ruling/order for it to comply with that order expeditiously.

H Order accordingly.

1992 TLR p275

A

[zRPz]EDWARD MAREALLE v MAREALLE CLAN AND AKILEI MAREALLE 1992 TLR 275 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Mapigano Ag JA

17 September, 1992 B

Flynote

Court of Appeal Rules - Service - Whether Rule 46(3) requires service of a copy of the order of the High Court upon the respondent - Non-applicability of Rule 82(2) to applications for leave - whether copy of ruling means copy of the order of the High Court - Rule 46(3) C

-Headnote

In an application for leave to appeal to the Court of Appeal the judge of the High Court of Tanzania refused leave. On an appeal against the ruling of the judge the Acting Justice of Appeal found that the appeal was not incompetent for non-compliance with Rule D 46(3).

Held: There is no Rule that is relevant to the present matter which stipulates that an application for a copy of the order of the High Court must be sent to the respondent. It E is not desirable to extend the rigorous provisions of Rule 83(2) to applications for leave. The words "Order" and "ruling" carry the same meaning and are mutually interchangeable.

Case Information

Order accordingly. F

[zJDz]Judgment

Mapigano, Ag. J.A.: What is before me is an application for leave to appeal to this Court against the order of the High Court at Arusha, Munuo, J. in respect of costs. A similar application to the High Court was refused by Nchalla, J. in his Ruling dated G 18/10/91, a copy of which is attached.

On behalf the respondents Mr. Ngalo, advocate, has raised a preliminary objection and asked that the application be dismissed with costs. His objection is based on two assertions, to wit, that the application is time - barred and that it does not conform to H Rule 46(3). Of necessity I have to consider and determine the merits of this objection at once.

Mr. Ngalo has said the obvious, that the application was filed long after the period prescribed by Rule 43(b) had elapsed. The application was filed on 16/12/91, i.e. roughly two months after the delivery of the Ruling by Nchalla, J. Under Rule 43(b) I such

application should be made within 14 days of the High Court's refusal. A

Counsel for the applicant, Mr. Zaffer Ali, has argued that in computing this period of 14 days the time requisite for obtaining a copy of the Ruling of the High Court must be excluded. He has pointed out, correctly, that he applied in writing for the copy of the B ruling with maximum despatch, though he admitted that he did not send a copy of that letter to the respondents. But there is no denying that he filed the application soon after he had obtained the copy of the Ruling.

Mr. Ngalo's arguments are that Rule 43(b) does not provide for such exclusion of C time, and that in any case the failure to send a copy of the letter applying for the Ruling to the respondents should deprive the applicant of the advantage of such exclusion. Mr. Ngalo would have us apply Rule 83(2) mutatis mutandis.

Mr. Ngalo has next contended that the application is not accompanied by a copy of D the order of the High Court's refusal. In his opinion such a copy is required by Rule 46(3), in addition to the copy of the Ruling. To this contention Mr. Zaffer Ali has replied that the copy of the Ruling is sufficient for the purposes of this application. E

I have been unable to accept Mr. Ngalo's submission that the appellant is not entitled to the exclusion of the time that was requisite to obtain the Ruling. True Rule 43(b) does not make any

provision to that effect. But I hold that the applicant can fall back on the provision of the basic limitation statue i.e. the Law of Limitation Act, 1971, section F 19(2). that should make a great deal of sense and meet the instincts of justice. Otherwise how can an applicant be expected to come to this Court before he has obtained a copy of the order of the High Court refusing leave? For if he comes without the copy of the order he will not have complied with Rule 46(3) and his application G would be adjudged incompetent.

There is no Rule that is relevant to the present matter which stipulates that an application for a copy of the order of the High Court must be sent to the respondent. And in my considered opinion it is not desirable to extend the rigorous provisions of Rule 83(2) H to applications for leave.

There seem to be some misconception about Rule 46(3) on the parts of both counsel. That provision is in the following terms:

I (3) Every application for leave to appeal shall be accompanied by a copy of the decision against which it is desired to appeal

1992 TLR p277

A and where application has been made to the High Court for leave to appeal by a copy of the order of the High Court.

As far as I understand the Ruling of the High Court that is appended to this application is precisely the kind of order envisaged by that Rule. It is relevant to observe that in many legal contexts these words "order" and "ruling" carry the same meaning and are B mutually interchangeable. Nchalla, J. could, if he had preferred, perfectly used the word "order" instead of the word "ruling" as a heading for his decision. Indeed, a ruling is often enough a decision that pertains to interlocutory matters, such as the instant objection. C

In the upshot the objection is overruled.

Objection overruled.

1992 TLR p277

D

[zRPz]REPUBLIC v SEIF SHARRIF HAMAD 1992 TLR 277 (HC)

Court High court of Zanzibar - Zanzibar

Judge Mmila Rm (Ext. J)

18th September, 1992 E

Flynote

Criminal Practice and Procedure - Bias - Disqualification on judicial bias - Grounds for disqualification .

Criminal Practice and Procedure - Application for presiding magistrate to withdraw from F the case - Duty of the court.

-Headnote

In an application by the accused for an order that the presiding magistrate withdraw from presiding over the case, the learned trial Resident Magistrate with extended jurisdiction found that no meritous grounds were established for the order to G withdraw to ensue.

Held: (i) Whether or not the presiding Magistrate should disqualify himself from hearing a case on the ground of bias requires an objective appraisal of the materials before H the court, and to say that a party has a subjective (albeit firm) apprehension of bias is not of itself sufficient to warrant, or require, the disqualification of the magistrate.

I (ii) the duty of the magistrate to disqualify himself for proper reasons is matched by an equal duty not to disqualify himself save

for proper reasons, and parties not to be encouraged to believe that, by an A application for the disqualification of a magistrate, they can have their case heard by a magistrate thought to be more likely to decide a case in their favour.

Case Information

Application dismissed. B

[zJDz]Judgment

Mmila, RM (Ext. J.): On September, 8, 1992 I heard the submissions of both sides in this case which centered on whether or not I, the Regional Magistrate with extended jurisdiction should disqualify myself from presiding in this case on allegations made by C the accused person which are as well supported by his counsels, that he has feelings which destine him to the conclusion that he has no confidence in me.

The defence's submission stemmed from a letter Ref. No. S.S.H/03/108/92 dated D August 28, 1992 written by the accused person addressed to me personally but forwarded to me by his defence counsels vide their letter Ref. No. Y.A.M/Z/92/15 of September, 1, 1992. Both these letters were to the effect that I should disqualify myself from hearing this case. To be precise, the learned defence counsels Ordered me to E disqualify myself before September 4, 1992. Quite a strange order, is it not! The learned state counsel strongly resisted the application.

The first point taken up by the defence is that the circumstances under which the accused person was granted bail in 1991, especially the conditions which were imposed clearly show that the case has been deliberately dragged into political latitude which F is, they argued, unfair. They argued further that the conditions which were imposed were principally intended to isolate the accused person from participating in politics. They impressed that he being a long time politician, and having once been the Chief Minister G of Zanzibar until he was expelled by the ruling party, the accused person is entitled to benefit from political changes which have swept the whole world and this country in particular. They contended that after all these conditions were not even suggested by the prosecution side. They argued that to the mind of a reasonable man, this situation H clearly shows that the presiding magistrate with extended jurisdiction is biased.

Counter - submitting on the point, the state counsel challenged that the conditions which were imposed by the court when the accused person was released on bail do not at I all portray that there was any bias. Mr. Mtembei submitted that since the case facing the

accused person concerns matters of national security, condition (d) for example was A rightly imposed. He also argued that it was not absolutely correct to say that those conditions were imposed by the court single handedly because some of those conditions were suggested by the defence side. Similarly, Mr. Mtembei submitted that it is a known fact that those conditions were imposed by the court before the political changes cited B by the defence were in sight, and that since those conditions have never been amended, it cannot be said they were imposed intently to isolate the accused person from participating in politics, therefore it is an unfounded ground that by imposing those conditions the presiding magistrate is, to the view of fairminded persons, biased. C

It is true, as was observed by Lord Justice Denning, M.R., in Janes v National Coal Board [1957] 2 Q.B.55 at pg. 67 that:

D There is one thing to which everyone in this Country is entitled, that is fair trial at which he can put his case properly before the judge ... No cause is lost until the judge has found it so, and he cannot find it without a fair trial, nor can we affirm it.

There is no dispute that we also subscribe to this great proposition. Equally great is E the proposition that:

The honesty and intergrity of a judge cannot be questioned, but his decision may be impugned for error either of law or fact F

see Breams Legal Maxims 9th Ed, by W.J. Byrne, Sweet & Maxwell Ltd pg. 61, Of course, there are exceptions. So that an order to withdraw from presiding in a case may be made, there must be sound reasons to the effect that it is expedient to the ends of G justice that is should be made.

Whether or not the presiding magistrate should disqualify himself from hearing a case on the ground of bias requires an objective appraisal of the materials before the Court, and to say that a party has a subjective (albeit firm) apprehension of bias is not of itself H sufficient to warrant, or require, the disqualification of the magistrate. The test to be applied, by objective standards, is whether there is material before the Court to support a conclusion of actual bias on the part of the magistrate or a reasonable apprehension either by parties, or exaction by plain, sober, simple, and stable men and women of I the society that he might not bring an impartial and

unprejudiced mind to the resolution of the issues in the case. In other words, there A must be keen grounds that reasonable suspicion exists, or rather there must be serious justification for the alleged mistrust.

It must be remembered however, that the duty of the magistrate to disqualify himself B for proper reasons is matched by an equal duty not to disqualify himself save for proper reasons, and

parties right not to be encouraged to believe that, by an application for the disqualification of a magistrate, they can have their case heard by a magistrate though to be more likely to decide a case in their favour.

The question I have to pose therefore is that; to the views of fairminded persons, can C it be said that those conditions were imposed with intents to isolate the accused person from political participations. Are there any grounds to show that reasonable suspicion exists?

The accused person was granted bail in 1991 when the United Republic of Tanzania D was still a single party state. Equally true is the fact that those conditions were not suggested by the prosecution side, but as properly submitted by Mr. Mtembei, most of those conditions were suggested by the defence counsels. To be particular, the court added only one condition out of those which were suggested, that is condition (d). E The Court had the discretion to impose any other conditions as it deemed fit, a fact which has been admitted. In that the said conditions were imposed before the cited political changes, and in as much as they remain unamended, it is quite absurd for the F accused person to complain that their imposition was a measure taken by the court single handedly to make sure that he was politically isolated, hence that the trial magistrate with extended jurisdiction is biased. The suspicion is thus unreasonable.

As to why there had to be condition (d), the accused person, as well as his counsels G are expected to know. As was submitted by Mr. Mtembei, the accused person is faced with a charge bearing on national security matters, which is no secret that it is a sensitive issue. Who knows what the accused had in mind by having those secret documents, should it be proved that he had them? If at all the court is duty bound to see that it balances the facts (materials) before it in all respects, who will therefore accept the H contention that condition (d) was in the circumstances unreasonable? Is it justifiable therefore to argue that the presiding magistrate has dragged the case into political latitudes? I sincerely find that there is no material whatsoever to convince me that I fairminded men and women of the society would have said those conditions are capable

of attracting them to think that there has been or there is bias on the part of the A presiding magistrate. This ground is thus spineless as it has failed to stand on the available facts.

The defence's second ground was that their client was embraced when an accusing finger was pointed at him, and that the presiding magistrate was of the impression that B the accused person was in breach of the conditions of bail even without being heard. They added that after the prosecution had cited the occasion which was reported in the Daily News of August 20, 1992, the presiding magistrate pointed out that he also saw such news in the Express news paper, after which the statement that the accused C person was provoking the court was echoed. They alleged therefore that by holding that the accused person was breaching bail conditions before hearing him, the presiding magistrate was wrong, hence that the accused person's feelings that he has no confidence in the presiding magistrate holds water. D

Mr. Mtembei did not say whether or not a finger was pointed at the accused person by the presiding magistrate. However, he said that it was a serious lie that the defence were not heard,

challenging that the remark came after all of them were heard, and that he was not sure if the complaint was intended to suggest that the accused person was to E speak on his own, which he said would have been unprocedural.

The general observation is that the allegations of the defence side and the accused person in particular have been wantonly exaggerated for purposes best known to them. To start with, I do not remember to have pointed a finger at the accused person. F Even, had it been so, one would have expected them to make an instant protestation so that the matter could have found its way into the record. They did not do so. Again, they stressed that it was the most serious act the presiding magistrate did which was G responsible to erode the accused person's confidence in the said magistrate. If at all it was true and thus serious, why did they not file affidavits to that effect? Is it proper in their good minds to bring such serious allegations in a form of letters? I hastily observe that the so called serious act has been presented below the standard expected of H them. One would have expected them to have filed affidavits to show that the alleged act was actually committed and thus serious.

However, even if I were to admit that a finger was actually pointed to the accused person, which I have said I do not remember, I dare say that it would not have been fatal. It is clear that the reports contained in the Daily News of August 20, 1992 as I well as the

Express indicated that the accused person was in breach of conditions of bail. Those A conditions were ordered by the court, and the court has the right to see that the orders it makes are strictly followed. At the time the court imposed those conditions, it did not venture a joke, the court meant a serious business. Since the court has inherent power to see that its decisions are observed and strictly followed, it has an equal right to B intervene whenever breaches are evident. Were it not so, the existence of courts themselves would have been questionable.

The most awkward part of these allegations is their contention that the remark was issued without giving chance to the defence to be heard. That is a huge lie! As C correctly submitted by Mr. Mtembei, the remark was made after both sides were heard, the record can tell. The remark referred to was versed as follows:

D Court: I am warning that pending the ruling which I will have to deliver, the accused person must abide to the conditions which were laid down. The act of contravening them is a sign of disrespect to the Court orders, indeed, an act of provocation to the Court. E

Then came the order to the effect that ruling was to be delivered on September 4, 1992. With all due respect, I candidly revolt to the submission by the defence that the remark was issued before they were heard. Seriously, basing on what I have quoted above, their submission on the point was a deliberate huge lie. Perhaps the question is; what F did they intend to achieve by such distinguished lie. Is it not to create the non - existent bias on the part of the presiding magistrate? Is it what is expected from officials of the court of their calibre? Advocates, as officials of the Court, have a prima facie duty to G help the court reach justiful decisions on the footing of the law, a task which can only be accomplished if they believe, and undertake to see that truth is the yardstick. Not otherwise.

There are a number of other untruthful allegations which the defence counsels swallowed H from the accused person without proper evaluations. There were high - lighted by Mr. Mtembei in the course of his counter - reply.

In the first place, Mr. Mtembei argued that the accused person's allegation in his letter that the court forced the Nairobi based lawyers to withdraw from defending him was a lie, adding I

that they did so on their own volition. The defence side did not respond to this A allegation.

I entirely agree with Mr. Mtembei that the Nairobi based lawyers withdrew from the case on their own volition. In essence, and as the record will support, those lawyers made several futile attempts to deliberately mislead the court by forcing it into B discussing its own decisions, something they know or, they ought to have known, was unprocedural and/or ipso facto illegal. Where on earth did they hear such a practice in respect of decisions of the kind? Not even in Kenya. Their conduct was a clear example of disrespect to decisions of the court. This is because they knew, and were canningly C adamant to appreciate that, if they felt dissatisfied with the decisions this court had delivered, their only open forum was to proceed, by way of appeal, to the Court of Appeal of Tanzania. Impatience could have been responsible to make them blind to the laid down procedures. So that when one of them was stopped from dragging the D court into what would otherwise have been grave misdirection, he became suddenly vexed and decided to withdraw. The court had no other option but to endorse the withdrawal. His colleague followed suit the next day. Under such circumstances, where is the hand of the court on the stop they took? Is the defence really justified to think E that they were actually forced out by the court? It would be quite misleading were we to agree to the feelings of the defence on the point. Let us agree that a spade will always remain a spade.

Similarly, Mr. Mtembei submitted that the accused person lied when he said in his F letter that soon after Nowrojee had dropped out, he had no other counsel to defend him and was refused time to look for another lawyer, Mr. Mtembei submitted that on the day Nowrejee dropped out, Mr. Jaffar was still in the employment of the accused person, and that he was not in court for reasons which were never disclosed. He G insisted that since Mr. Jaffar was the one who had particularly suggested the hearing dates to which Mr. Mtembei himself consented, it could not be said that the case proceeded without allowing the accused to be represented. Again, there was no response from the defence on this point. H

Once again, I agree with Mr. Mtembei that the position was as he submitted. After Nowrejee had dropped out, Mr. Jaffar was still in the employment of the accused person. His failure to appear in Court on that day was not backed by any reasons. Since he was the person who had suggested the hearing date, and it being true that I justice delayed is justice denied, the case had to proceed. Far

from the fact that the accused untruthful when he said he had no counsel by that day, A he was also untruthful when he said that he asked to be granted time so that he could engage another

lawyer and that his request was turned down. The truth is that such a request was raised on the day that followed and he was granted time. It appears that the B accused person, with due respect, is fond of fabrications. Let truth prevail.

Further, Mr. Mtembei, submitted that the accused person lied when he wrote in his letter that he was favoured in that he was given seven weeks by the court in which to prepare his reply to the submission which was made by the defence counsels. Mr. C Mtembei submitted that he had asked for two weeks time in which to prepare his reply but that the defence counsels asked the court to extend the time further on the ground that they had to attend other matters in other courts there in between. Again, the defence did not respond to this point. D

As submitted by Mr. Mtembei, the question of favouritism here is another such connection. The truth is to be sought from the Court record. The relevant part is as follows:

E Mr. Mtembei: I pray for the time in which to prepare myself to respond to their arguments quite clearly. I have to conduct a research. Two weeks time will do.

Mr. Mchora: We agree that the arguments we have raised are quite serious and we feel F that it will not be proper for him to rush to reply. We also agree that delaying the rights is not proper. We have been given responsibilities of other matters for example in Dar es Salaam. The two weeks' time he has requested will take us to 1.7.1992. I, personally will be on 2.7.1992 in the High Court at Mtwara and so is G

my colleague. On 13.7.1992 I will be in the High Court at Tanga together with this colleague of mine. That will be up to 24.7.1992. We pray that more time will be required. H We propose 5.8.1992 when we shall proceed on the day to day basis.

Mr. Mtembei: No objection. I

Order: Hearing on 5 - 11.8.1992.

1992 TLR p285

MMILA RM (Ext. J)

Having attended to what exactly transpired on that day, I resolutely endorse the A submission by Mr. Mtembei that once again, the accused person was untruthful when he alleged that he was favouredly granted seven weeks in which to prepare himself. The accused person know, or ought to have known that the hearing of the case was fixed on 5.8.1992 on the request of his own lawyers, not because the court intended to give B more time to Mr. Mtembei so that he could thoroughly prepare himself as complained. After all, the ceaseless extortion of the court has always been to do justice. It would not have been considered as something wrong even where for example, the Court would have granted him such time. It appears that, by such numerous connections, the C accused person is all set to mud sling the courts' good image into peoples eyes. No fairminded persons are expected to say, on those allegations, that the presiding magistrate was in any way biased.

To follow suit is their allegation that the presiding magistrate has formed sort of D friendship with the state counsel. Their allegations are based on the erroneous belief that the state counsel was supplied with proceedings by the presiding magistrate. Mr. Mtembei told the court that he applied for the proceedings to the Registrar and that he was supplied the said proceedings. He

also revisited the administrative practice earlier E on explained in the Court as to how a party may secure the proceedings.

With respect, this complaint is similarly baseless in that what Mr. Mtembei told the court is the truth. The presiding magistrate had no hand in supplying the said proceedings to F the state counsel as all such matters are in the hands of the Registrar. It is equally true that I thoroughly explained this in one of the many rulings I have so far written, but that once again, the defence is illegally questioning my decision on the point. I observed the other time that the accused person himself has on several occasions secured G proceedings of this case at various stages. He knows better than I do how he obtained them. In that I was not the one who supplied them to him, most probably he was supplied them by the Registrar. Then why not the prosecution side? How does the questions of friendship between the presiding magistrate and the state counsel arise? H Is the defence trying to imply that it is justice to supply the proceedings of this case to them, but that it is injustice when supplied to the state counsel? What is the supposed rationale for their allegation on the point? It is on this basis that I find it quite ridiculous to be told that because the state counsel was supplied with proceedings, then the I presiding magistrate has established sort of

friendship between him and the state counsel. It is time all of us know that it costs A nothing to tell truth, Reality must always be faced courageously.

Further, in his submission, Mr. Mtembei told this court that to him, the various applications which were lodged and determined right from the time when the case was B transferred to the presiding magistrate to date are indicative that the accused persons' feelings were pre-hatched. He said that on September, 4, 1991 one of the accused's counsels Mr. Jaffar wanted to know if the presiding magistrate had any right to hear this case, a remark which was followed by an unsuccessful application to the effect that C such magistrate had no jurisdiction to hear and determine this case. Mr. Mtembei added that their appeal to the Court of Appeal of Tanzania failed on technicalities.

Mr. Mtembei submitted similarly that the defence filed another application before Dahoma, J., in which they asked for the trial magistrate to be disqualified, the D application was refused. He added that this was followed by another such application which was lodge in the High Court in Mainland Tanzania. Again, the application was refused.

Mr. Mtembei submitted that on the basis of the trend of those applications he was E quite sure that the arguments currently raised by the defence are baseless, only that their interest has always been to make sure that the case does not proceed to hearing, most probably because the accused person has no reasonable defence to offer. Mr. Mtembei asked for the application to be dismissed. F

Judging from what has been taking place right from when this case was transferred to the presiding Regional Magistrate with extended jurisdiction, one cannot avoid a thrust support to Mr. Mtembei's submission that the accused person's feelings were prehatched so that the case

may keep on dragging in court. I may add that may be G the accused person intends that this particular magistrate should not preside, which will connote that the accused person is after a magistrate of his own choice. This cannot be accepted. Otherwise, how does one explain the fact that the accused person, with the aid of his counsels, keeps on raising the same matters which had been adjudicated H upon? Or rather how does one explain those applications which were based on connected facts such that which was heard and determined by his Lordship justice Dahoma as well as that one which was filed in the High Court at Dar es Salaam? I What about the various falsified allegations which have been discussed above? It is on this basis that I agree with Mr.

Mtembei that the intention of the accused person has always been to frustrate the A progress of the case camouflaging this intention on such false allegations. The reasons for doing so are best known to the accused person himself.

I must make two observations here. The first one is that by dictating a deadline that the presiding magistrate should beseech to quietly divest himself of this case before the B 4th September, 1992, the learned defence counsels gave an order to the presiding magistrate to disqualify himself. Had they the right to make such an order? Surely, they had no such right. That was a disrespect of the highest order to the presiding magistrate C and courts of justice in general. Literally, they meant they did not even want to receive the ruling the presiding magistrate was expected to deliver on 4th September, 1992. In fact, that was not the conduct expected from the court officials of their class.

Secondly, the learned defence counsels expressed unambigous support to the D accused person's allegations levelled against the presiding magistrate. However, as amply demonstrated above these allegations have turned out to be false. The question is; why did the defence counsels support the allegations without conducting any inquiry as to their truth? They could have easily ascertained most of these allegations by E examining the proceedings, for which the Registrar could have been contacted by them. In that they did not so ascertain the truthfulness of those allegations, their act of supporting them places them in the same footing with the accused person that they also unjustifiably made misrepresentations which depict hatred and preconceived and F malicious attacks on the presiding magistrate. That is why they even ventured to say that the words "This is yet another application ..." appearing in one of my rulings mean I am supporting the prosecution side. Do those words really connote taking a side? Justifiably, these words mean there have been several other applications, and this is G just one of them. That is why, in my observation, their action has been a more attempt by them all to soil and/or tarnish my name and unjustifiably poison public opinion, which is indeed not to the broad interests of the fairminded men and women of the society. H

It is on this basis that I dismissed this application on September, 8, 1992.

I Application dismissed.

A

[zRPz]HAMSON D. GHIKAS v LUDWINA G. GHIKAS 1992 TLR 288 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Mfalila JJA, Kisanga JJA, Mapigano Ag. JA

21 September 1992 B
Flynote
Administration of Estates - Grant of probate - Conditions for grant - Necessity of a will.
-Headnote
The respondent petitioned for, and was granted, probate by the High Court in respect of the estate of her late father. The appellant, also the child of the same deceased C father applied for a revocation of the grant of the probate to the respondent but the High Court refused the application. The appellant appealed to the Court of Appeal. In the course of hearing and upon perusal of the High Court proceedings, the Court noted a D number of irregularities whose details are found in the order of the Court.
Held: The petition for probate by the respondent was misconceived as the deceased died intestate and the purported grant of the same was null and void. E
Case Information
Order accordingly.
Ngalo, for appellant
Masuma, for the respondent. F
Judgment
Kisanga and Mfalila, JJ.A. and Mapigano Ag. J.A.: The record in the matter before us shows that the respondent has petitioned for, and was duly granted, probate by the High Court (Chua, J.) in respect of the estate of her father, the late Adolf D. G Ghikas. Subsequently the appellant who is also the child of the deceased, applied for a revocation of the grant to the respondent, but the High Court (Mroso, J.) refused the application.
It is from that refusal that this appeal is preferred. Before us the appellant is represented by Mr. C.M. Ngalo, learned advocate, while Mr. C.J. Maruma, learned advocate is H for the respondent.
When the appeal was called on for hearing counsel for both sides informed us that they were applying for a consent order to provide for, inter alia, a variation of the Grant of Letters of Administration issued to the respondent so as to include the appellant I

as a joint grantee of Letters of Administration in respect of the estate in question. A
It was at once apparent that there was a serious problem in the matter. While the learned counsel are asking us to vary the Grant of Letters of Administration issued to the respondent, the record makes it quite plain that what was issued to the respondent B was not a Grant of Letters of Administration; it was a Grant of Probate duly issued in pursuance of the respondent's

application for the same. It is therefore impossible to make the consent order as proposed by counsel for the simple reason that we cannot vary a Grant of Letters of Administration which was never issued in the first instance. C

But the matter does not end there. There is the further question of the validity of the said Grant of Probate issued to the respondent. Section 24(1) of Probate and Administration Ordinance (Cap.445) provides that: D

24-(1) Probate may be granted only to an executor appointed by the will.

And rule 33 of the Probate Rules requires, inter alia, that: E

(a) the last will of the deceased and all codicils thereto shall accompany the petition for grant of probate.

The reading of both provisions makes it abundantly clear that the petition for, and grant of, probate presuppose the existence of a will. In the instant case, however, the F purported position for probe by respondent was not accompanied by any will, and going through the entire record there is no mention whatsoever of any will left by the deceased. Indeed the very fact that counsel are asking for consent order, to vary the grant of Letters of Administration so as to make the appellant a joint grantee of G Letters of Administration clearly suggests that no will of the deceased exists or has been traced.

In the circumstances, therefore, it seems plain to us that the petition for probate by the respondent was grossly misconceived and the purported grant of the same was simply H null and void. When those matters were pointed out to the learned counsel for the parties, they readily conceded.

In the result we set aside the purported grant of probate as being null and void, and as this is entirely a family matter we make no order for costs.

I Order accordingly.

1992 TLR p290

A

[zRPz]J. B. SHIRIMA & OTHERS EXPRESS BUS SERVICE v HUMPHREY MEENA t/a COMFORT BUS SERVICE 1992 TLR 290 (HC)

Court High Court of Tanzania - Arusha

Judge Mushi J

29 September, 1992 B

Flynote

Civil Practice and Procedure - Plaint - Discloses no cause of action - Discloses relief sought - Relief is not a cause of action - What court to do. C

-Headnote

A preliminary objection was raised by the defendant that the plaint did not disclose a cause of action. The Court ordered the plaintiff to amend the plaint so as, inter alia, to disclose a cause of

action particularly that of malicious prosecution. The plaintiff merely added malicious prosecution in reliefs sought. D

Held: (i) A relief is not a cause of action;

(ii) where the plaint does not disclose a cause of action the Court has two alternatives:

E (a) to order amendment of the plaint, or

(b) to strike out the plaint.

Case Information

Plaint struck out

Jonathan, for the defendant F

Maruma, for the plaintiff

[zJDz]Judgment

Mushi, J.: This is a ruling with regard to a preliminary legal point raised by Mr. Jonathan learned counsel for the defendant to the effect that the plaint does not G disclose a cause of action and thus it should be struck out with costs to the respondent.

Earlier on the learned counsel had successfully moved this court to rule in his favour upholding two preliminary legal points. On 13/7/1990 this court ruled and ordered, I quote:

H It is hereby ordered that the plaintiff file an amended plaint listing all the plaintiffs or alternatively omitting the word "others" from the plaint. The tort of malicious prosecution should also be pleaded in the plaint. I

1992 TLR p291

MUSHI J

An amended plaint was accordingly filed by the learned counsel Mr. Maruma for the A plaintiff. The learned counsel for the defendant under paragraph No. 15 of the written statement of offence to the amended plaint stated and I quote:

B The defendant at the hearing will urge and pray that the suit be struck out with costs.

This is what the learned counsel did when the case was called up for hearing. In short the learned counsel stated that the plaintiff had not fully complied with the directions of the Court in the earlier ruling. The learned counsel stated that the court directed that C the tort of malicious prosecution should be specifically pleaded in the plaint but this has not been done. The learned counsel said that the fact that relief for malicious prosecution is claimed in the relief, that fact does not amount to pleading the tort of malicious D prosecution as a cause of action. Mr. Maruma, learned counsel for the plaintiff, did not directly state that he had infact fully complied with the directions of the court. The learned counsel stated, and I quote from his arguments:

E There have been efforts to comply with the Court Order of 13/7/1990. The paragraphs containing the cause of action are contained in paragraphs 4,8,9 & 11 of the amended plaint.

F - Paragraph 4 states that the complaint by the defendant was false.

- Paragraph 8 - it is contended that had no reasonable or probable cause.

The two paragraphs read together do connote that such complaint must have been G actuated by malice.

Paras 9 & 11:

Complaint led to the arrest of the plaintiff and seizure of the bus resulting to losses and injury to his person. The pleadings clearly indicate clear cause of action. It is not H necessary to use the actual words - malicious prosecution.

Lastly the learned counsel said that courts have discretion to allow the amendment in order that the plaint may disclose a cause of action and her implored the court and I said:

1992 TLR p292

MUSHI J

A If however it is found that it is necessary to use the specific words - malicious prosecution in the plaint, I will readily comply with the direction.

First I respectfully agree with the learned counsel for the defendant that the plaintiff has B not complied with the direction on the court in the earlier order with regard to none disclosure of a cause of action. The paragraphs in the amended plaint which the learned counsel for the plaintiff said can be construed to amount to pleading malicious prosecution have the same contents as in the plaint. Nothing has charged. The only C noticeable change is the inclusion of the clause malicious prosecution in the relief paragraph - 15 (e). Relief is not a cause of action. Relief must stem from cause of action. The problem which is being complained of is not the necessity or not of using the specific words malicious prosecution as stated by the learned counsel but whether the D wrong which is the subject of the pleadings has been distinctly pointed out. In other words what would be the answer to this question:

E what is the wrong which is being complained of in these pleadings?

The answer to this question will constitute the cause of action. It could be wrongful confinement, breach of contract, defamation, and so forth. All I can read from the plaint is a set of facts which, though, read together may or may not amount to a specific F tort. It is not for the defendant to figure out from the plaint the possible wrong complained of. It is for the plaintiff to make it absolutely clear in the plaint what the cause of action is so as to enable the defendant to file a proper defence. I am satisfied therefore that the plaint does not disclose a cause of action. G

The question is what should this court do. There are two options which are open to the court. The first are in to strike out the plaint as prayed by the counsel for the defendant. The other option is to order an amendment to the plaint to disclose a cause of action if possible as prayed by the counsel for the plaintiff. The second option has already H been extended to the plaintiff in a earlier ruling dealing with the same legal problem. The counsel for the plaintiff did not comply with the direction of the court and no reasons have been given for such inaction. Similarly there are no reasons for the court to exercise its discretion further in favour of the plaintiff for the same point for the second I time. It is my considered opinion that

1992 TLR p293

in the absence of exceptional circumstances, any further exercise of discretion in A favour of the plaintiffs to amend the plaint so as to disclose a cause of action will not be a judicial discretion. The only option left, therefore is to strike our the plaint. The plaint is accordingly struck out for not disclosing a cause of action. The defendant will have his costs. B

Plaint struck out.

1992 TLR p293

C

[zRPz]LAUSA ALFAN SALUM AND 116 OTHERS v MINISTER FOR LANDS HOUSING AND URBAN DEVELOPMENT AND NATIONAL HOUSING CORPORATION 1992 TLR 293 (HC)

Court High Court of Tanzania - Mwanza
Judge Moshi J

D

6 October, 1992
Flynote
Civil Practice and Procedure - Prerogative orders - Certiorari and prohibition - Circumstance for issue. E
-Headnote
This is an application for leave to apply for orders of certiorari and prohibition under section 17, 17A and 18 of the Law Reform (Fatal Accidents and Miscellaneous provisions) Ordinance Cap 36 as amended by Act No. 55 of 1968 and Act No. 27 of F 1991. The application was intended to challenge the exemption given by the Minister for Lands, to the second respondent from all the provisions of the Rent Restriction Act relating to the restriction on the amount of rent that may be charged or collected and from the provisions of sections 12, 16, 17, 26 and 37 of the Rent Restriction Act. On G the authority of the first respondent's order the second respondent increased rents ranging from 845.56% to 14,330.64% among applicants with effect from September 1st 1992.
Held: (i) Any action of a public official done in official capacity is challengeable on H the ground of illegality, irrationality and procedural impropriety.

(ii) from the submissions and affidavits a prima facie case has been made out for the intended application.
Case Information
Application granted. I
1992 TLR p294
MOSHI J
Matata, for Applicants A
Magoma for respondents
[zJDz]Judgment
Moshi, J.: This is an application for leave to apply for Orders of Certiorari and Prohibition preferred by the learned advocate for the applicants, Mr. Matata, under B the provisions of sections 17, 17A and 18 of the Law Reform (Fatal Accidents and Miscellaneous Provisions) Ordinance Cap. 360, as amended by Act No. 55 of 1968, and Act No. 27 of 1991. It is supported by the affidavit sworn by one Lansa Alfan Salum for, and on behalf of, and with the authority of, all the other 116 applicants, C and it is resisted by a counter-affidavit sworn by William C. Magoma, learned Senior State Attorney, for, and on behalf of, the Attorney General.

The short background to the matter is as follows. The applicants are tenants in premises in which the second respondent is the landlord under tenancy agreements which D stipulate, among other terms and conditions, the rents payable. On January 24th 1992, the first respondent, Minister for Lands, Housing and Urban Development, made an Order under section 2(1)(b) of the Rent Restriction Act 1984, published under GN No. 41 of 1992, which exempted the second respondent, National Housing Corporation, E among other parastatals specified therein, from all the provisions of the Rend Restriction Act relating to the restriction on the amount of rent that may be charged or collected by the second respondent from any tenant occupying any part of their premises. The Order also exempted the second respondent from the provisions of sections 12, 16, 17, 26 F and 37 of the Rent Restriction Act which operate to confer upon a tenant a statutory tenancy upon the determination of his contractual tenancy. This Order was made with the approval of the National Assembly signified by the Resolution passed at Dodoma on the Twenty third day of January 1992. G

Consequent upon, and on the authority of the first respondent's Order, the second respondent then increased rents at exorbitant rates ranging from 843.56% to 14,330.64% among the applicants effective September 1st 1992. The percentage of the increased rent has now been reduced to, and it stands at, 800%. H

Mr. Matata's grounds of contention are threefold: First, that the rent increases are unreasonably exorbitant, were unilaterally made, are disproportionate among the applicants, and are discriminatory in that they favour the specified parastatals against other parastatals and private landlords, and thus offend Article 13 (1) and (2) of the I Constitution of the United Republic of Tanzania,

as well as the terms and conditions of the tenancy agreements, and the principles of A natural justice. The case of Madhwa and Others v City Council of Nairobi [1968] E.A. 406, was cited and relied upon. Secondly, that the Minister's Order casts the jurisdiction of the Regional Housing Tribunal and that the caster clause offends Article 13 (3) of the Constitution, and, Thirdly, that the Minister's Order was ultra-vires the B enabling provision of the relevant law, in that, section 2 (1)(b) of the Rent Restriction Act empowers the Minister of exempt from all or any of the provisions of the Rent Restriction Act, premises or class of premises, and not a class of landlords. Leave is then being sought to contest the Minister's Order and the second respondent's C increases of rent on these grounds in the intended application. The learned advocate prayed for the issue of an interim prohibitory order to restrain the second respondent from charging the new rents, and from evicting the applicants until the intended application, in the event that leave is granted, is finalized, on account of that the D Minister's Order confers on the second respondent powers to charge any rent and to evict tenants without recourse to Regional Housing Tribunals or to Courts of law for that matter. A passage from Halsbury's Laws of England Volume 11, page 72, paragraph 130, was cited and relied upon. E

Mr. Magoma is resisting the application on three grounds. First, that the application is defective in that Lausa Alfan Salum has no locus standi and that her affidavit is defective in that it does

not give her particulars. But there is an instrument attached to the affidavit as annexure A executed by the rest of the applicants authorizing Lausa to F appear and act for, and on behalf of, them. Mr. Magoma has stated that Annexure A was not served on him, and I am certain that had he seen it, he would have realized that his contention that Lausa has no locus standi is totally devoid of merit. I have had sight of Lausa's affidavit. I have examined its form and contents. With respect, it does G occur to me, on proper reflection, that the affidavit is devoid of the defect complained of or of any other defect for that matter. It portrays all that a defective affidavit does not. I am satisfied, and hereby find, that Lausa has locus standi, and that her affidavit is not defective. H

Secondly, Mr. Magoma has submitted that the first respondent - the Minister was wrongly joined in these proceedings and that the second respondent would have been the only respondent. With even greater respect. I find this argument unsustainable. As rightly pointed out by Mr. Matata, the effect of the minister's order was to confer I upon the second respondent an unrestricted power to

determine rents by removing tenants' right of statutory tenancy, and casting the A jurisdiction of regional housing tribunals. In other words, in raising the rents, the second respondent was clearly acting upon, and exercising, the power conferred upon them by the minister through his order. Viewed that way, therefore, it is impossible to divorce the action of the Minister from that of the second respondent. What they did, in my view, B was so intermingled and interdependent that one could hardly proceed against one of them without at the same time proceeding against the other. I am satisfied, and hereby find, that the first respondent, the Minister, is properly joined in these proceedings. C

And Mr. Magoma's third point of contention is that this application is devoid of merit on account of that the Minister's Order was not ultra-vires the enabling provision of the Rent Restriction Act, and that it was not in violation of any Articles of the Constitution. Well, quite obviously, in my view, this court cannot properly be called upon to D adjudicate on these matters, one way or the other, at this stage of the proceedings. Those are matters touching upon the merits or otherwise of the intended application. All that the court has to decide at this juncture is whether or not a prima facie case has been made out for the intended application. E

Broadly speaking, prerogative orders of certiorari and Prohibition may be issued in certain cases, either to quash a decision made in the course of performing a public duty or to prohibit the performance of a public duty, where the injured party has a right to have anything done, and has no other specific means of, either having the decision F quashed or the performance of the duty prohibited, when the obligation arises out of the official status of the party or public body complained against. Quite clearly, the applicants have an interest in the matter they are applying for. The first respondent, and the second respondent, are a public official, and a public body, respectively, who had G an imperative legal duty of public nature which they had to perform in their official capacity. In my considered view, any of their actions or decisions is challengeable, firstly, if it is tainted with illegality, that is, the power exercised is ultra vires and

contrary H to the law. Secondly, if it is tainted with irrationality, that is, the action or decision is unreasonable in that it is so outrageous in its defiance of logic or of accepted moral standards that no sensible person who had rightly applied his mind to the matter to be acted upon or to be decided could have thus acted or decided. And thirdly if the action I or decision is tainted with procedural impropriety, that is, failure to observe basic rules
1992 TLR p297
of natural justice or failure to act with procedural fairness towards the person who will A be affected by the action or decision.
In this matter, I have given due consideration to both learned counsels' submissions, and I have perused the affidavit as well as the counter-affidavit. I am satisfied that a prima facie case has been made out for the intended application. Invariably, though, in an B application of this nature, the grant of leave to apply for an order of certiorari or prohibition or both operates as a stay of the proceedings in question until the determination of the intended application or until the court otherwise orders. There is much good sense in this and, besides, I am buttressed in this by what is stated at page C 72, paragraph 130, Volume 11, 3rd Edition, of Halsbury's Laws of England.
In the event, I allow the application, and hereby grant leave to apply for Orders of Certiorari and Mandamus. An interim Prohibitory order to issue restraining the second D respondent from charging and collecting the new rents from the applicants, and from evicting the applicants from the promises on account of their failure to pay the new rents, until the intended application is determined.
E Order accordingly.
1992 TLR p297
F
[zRPz]KATEMI NDAKI v REPUBLIC 1992 TLR 297 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Omar JJA, Ramadhani JJA, Mnzavas JJ

12 October 1992 G
Flynote
Criminal Law - Murder - Provocation - Failure to address the assessors on the issue of provocation - Effect of.
-Headnote
The appellant was charged with and convicted of murder c/s 196 of the Penal Code H and sentenced to death. Apart from the evidence of PW.1 who asserted to have identified the appellant at the scene of crime there was a repudiated confession of the appellant saying that he killed the deceased in the heat of passion caused by sudden provocation by the accused. The trial court did not address itself on the issue of I provocation raised in the confession.
1992 TLR p298

OMAR JJA, RAMADHANI JJA, MNZAVAS JJA

Held: The omission to address the issue of provocation raises doubts as to whether A an ordinary person of the community to which the appellant lived would not have been provoked by the deceased's outlandish behaviour. The doubt is resolved in favour of the appellant. B

Case Information

Appeal allowed.

Kahangwa, for the appellant

Muna, for the Republic. C

[zJDz]Judgment

Omar, Ramadhani and Mnzavas, JJ.A.: In this appeal the appellant was charged with and convicted of murder c/s 196 of the Penal Code and sentenced to death. Dissatisfied with the finding and the sentence of the High Court, (Moshi, J.,), he is appealing to this Court. D

Arguing the appeal on behalf of the appellant Mr. Kahangwa, learned defence Counsel submitted that the appellant killed the deceased because of provocation offered to him by the deceased.

In the alternative, but without prejudice to the defence of provocation, it was Mr. E Kahangwa's submission that because one of the assessors was of the opinion that conditions for proper identification of the appellant as the person who fatally attacked the deceased with a panga on the material night were lacking the trial Court should have resolved the doubt in favour of the appellant and find him not guilty. F

The Court was invited to allow the appeal and acquit the appellant. In rebuttal Mr. Muna, learned State Attorney, supported the conviction. The learned Counsel submitted that PW.1, daughter of the deceased, had identified the appellant through light of a torch, one Silvester, shone in the room. Mr. Muna was also of the view that even if G the question of identification of the appellant was resolved in his favour his confession to the justice of the peace implicated him with the murder of the deceased. It was the learned State Attorney's submission that the trial Court was right in coming to the conclusion that appellant's confession to the justice of the peace was free and H voluntary. Mr. Muna argued that on the evidence tendered in the lower Court the defence of provocation was not available to the appellant.

In this case the evidence that tended to connect the appellant with the death of the deceased is the testimony of Kweji Katwale, I

(PW.1), who testified that she saw the appellant through a torch light as he was A mercilessly cutting the deceased with a panga.

One of the assessors did not however believe that the witness, (PW.1), could have properly identified the appellant as the killer notwithstanding the aid of a torch; given that it was a dark night.

The other evidence which tended to implicate the appellant with the death of the B deceased was appellant's extra-judicial statement which apparently amounted to a confession. He however in his defence in Court repudiated part of the statement which was most incriminating.

This was his statement that he had visited deceased's house at about 1 a.m. and attacked the deceased, deceased's wife and one of his children with C a panga.

The learned trial judge examined the confession in great detail and on the basis of the decision in Tuwamoi v Uganda [1967] E.A. 91 came to the conclusion that appellant's confession - exhibit P.3, was given freely and voluntarily; and that it could not but be true. With respect to the learned trial judge we have no quarrel with the D finding that appellant's confession could not have been anything but true given the enmity between the deceased and the appellant based on belief of witchcraft and bearing in mind that at the material time the appellant was facing a charge of threats to murder in E a Primary Court where the deceased was the complainant.

Our only concern is whether appellant's confession read as a whole afforded him a defence of provocation.

We hereby quote in extenso his confession to the justice of the peace: F

MAELEZO YANGU MAFUPI

TULIKUWA NA KESI MAHAKAMA YA MWANZO KABLA NA MAREHEMU KATWALE G SAHANI. BAADA YA KUTUKANANA KWENYE POMBE NILIWEKWA LOCK-UP, BAADAYE SIKU HIYO NILIPATA MDHAMINI NA KUPEWA TAREHE YA KURUDI. KABLA YA TAREHE YETU MAREHEMU ALINISHITAKI SUNGUSUNGU NIKADAIWA NIJIELEZE. NILIJIBU H KUWA KESI YANGU IKO MAHAKAMANI. NILITOLEWA NJE ILI WAJADILI. BAADAYE NILIITWA NA KUELEZWA NAPEWA VIBOKO 16 NA SH. 20,000/=, NILIKATAA KUPIGWA KUWA WATANIUA. HIVYO NILILIPA SHS. 10,000/= ILI NISIPIGWE, PIA NILILIPA SHS. I 20,000/=, JUMLA SHS.

1992 TLR p300

OMAR JJA, RAMADHANI JJA, MNZAVAS JJA

A 30,000/=. BAADAYE NILIULIZA KAMA YAMEKWISHA NDIPO MAREHEMU ALIKUBALI IMEKWISHA NDIPO TUKAONDOKA. NILIENDA MAHAKAMA SIKU MOJA KABLA YA SIKU YETU. SIKUKUTA MTU, KESHO YAKE SIKWENDA NIKAWA NA SAFARI. KURUDI NILIKUTA KUITWA SHAURINI NDIPO NILIKASIRIKA KUONA WATOTO WANGU WANALALA NJAA B NA BADO MAREHEMU ANAENDELEZA KESI NA FEDHA ZANGU ZOTE NIMEMALIZIA KWAKE. NILIENDA KWAKE KUPIGA HODI KAMA SAA SABA. MAREHEMU MKEWE NA WATOTO WAKE WAWILI WALITOKA NJE. NILIANZA KUWAKATA MAREHEMU MKEWE NA C MTOTO WAO MMOJA KWA PANGA. BAADAYE NILIKIMBIA NA KULITUPA PANGA MTONI SIMIYU NIKARUDI NYUMBANI. LILIPOPIGWA YOWE NILIENDA KUJIFICHA KIJIJI CHA D NYAMIGAMBA BADALA YA KIJIJI CHANGU CHA CHANDULU. NDIPO BAADAYE NILITAFUTWA NA KUKAMATWA HAYA NDIYO MAELEZO YANGU.

From our scrutiny of this confession its gist is that the appellant lost his temper and E was provoked when he received a Court summons about the case between him and the deceased after Sungusungu had reconciled them and after he was made to cough up a total of Shs. 30,000/= and the deceased had said that the quarrel between them had ended. F

He was pained to see that his family had nothing to eat as he had paid all the money he had in order to end the quarrel between him and the deceased but the deceased had, it would appear, taken him for a ride.

Apparently neither in his judgment nor in his summing up to the gentlemen assessors G did the learned trial judge mention the possibility that the appellant may have been provoked by deceased's behaviour. Had he taken this possibility into account he would no doubt have put to the assessors the question whether deceased's behaviour could H have provoked an ordinary person of the community to which the appellant belonged.

As it was held in the case of Chacha s/o Wambura v R. [1953] 20 EACA 339. "The question of provocation is ordinarily one of fact and it is only in the clearest cases that it should be withdrawn from consideration on that basis. All elements of provocation I should be considered together in assessing their effect."

1992 TLR p301

The Eastern Africa Court of Appeal had also this to say in Festo Shirabu Musungu v. A R. [1955] 22 EACA 454 - "Facts relied on as provocation do not have to be 'strictly proved'. It is only necessary that there should be such evidence as to raise reasonable probability that they exist. If this is the effect of the evidence, the onus lying upon the prosecution is not discharged and murder is not proved." B

The question as to whether the appellant went to deceased's house and attacked him immediately after he came to know of the Court summons was not gone into by the trial Court and we are therefore unable to say whether or not the killing was done in the C heat of passion caused by sudden provocation.

We are also not in a position to say what would have been the opinion of the assessors on the question of provocation if the facts had been put to them.

This omission does, in our considered opinion, raise doubt as to whether an ordinary D person of the community to which the appellant lived would not have been provoked by deceased's outlandish behaviour. The doubt is resolved in favour of the appellant and we accordingly find him not guilty of murder but guilty of the lesser offence of manslaughter c/s 195 of the Penal Code. E

The conviction for murder is quashed and the sentence of death is hereby set aside.

Taking into account that the appellant has been in remand since 1989 and his not very young age we feel that a sentence of 5 years imprisonment commencing from the day F he was convicted - (11/3/92) will meet the justice of the case. The appellant is so sentenced.

G Appeal allowed.

1992 TLR p302

A

[zRPz]CHRISTIAN s/o KALE AND RWEKAZA s/o BERNARD v REPUBLIC 1992 TLR 302 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Omar JJA, Ramadhani JJA, Mnzavas JJA

12 October, 1992 B

Flynote

Evidence - Witnesses - Credibility of witnesses.

-Headnote

The appellants were charged and convicted of murder in the High Court of Tanzania. C The conviction largely depended on the evidence of PW.1 who testified that he saw the appellants beating the deceased with a sizable stick. On appeal to the Court of Appeal the advocate for the appellants challenged the convictions on the grounds of poor identification; failure by the trial judge to address the assessors, in his summing up, on D the question whether or not the appellants acted jointly in attacking the deceased and that the second appellant could not be said to have aided and abetted the commission of the offence.

Held: (i) PW.1 was not only a reliable witness but also a witness of truth and his evidence clearly showed that the first appellant had a hand in the murder of the E deceased;

(ii) the testimony of PW.1 did not incriminate the second appellant.

Case Information

Appeal dismissed. F

[zJDz]Judgment

Omar, Ramadhani and Mnzavas, JJ.A.: A charge of murder c/s 196 of the Penal Code was laid at the doors of the appellants - Christian Kake and Rwekaza Bernard. The Republic alleged that on or about the 23rd day of July 1988, at Kangabusharo G village within the district of Bukoba, Kagera Region, the appellants jointly and together murdered one Gervas Lukaito.

The appellants pleaded not guilty to the charge but after a full trial the High Court, (Chipeta, J.) was satisfied that the charge of murder had been proved against both appellants beyond reasonable doubt. They were accordingly convicted and the H mandatory sentence of death was imposed.

Dissatisfied with the finding and sentence of the High Court the appellants have appealed to this Court. Arguing the appeal Mr. Rugarabamu, learned defence Counsel I vigorously attacked the evidence of Salvatory Tibenda, (PW.1), who testified in the Court

of first instance that he saw the appellants as they were belaboring the deceased with A a sizeable stick. It was the learned Counsel's submission that there were doubts as to whether the witness could have properly identified the appellants as the people who fatally attacked the deceased on the fateful day. In support of his argument the learned Counsel referred us to the opinion of the three assessors (who sat with the learned B judge) which was to the effect that PW.1 could not have properly identified the appellants as the people who fatally attacked the deceased.

Secondly the learned defence Counsel submitted that the learned trial judge failed to address the gentlemen assessors in his summing up on the question as to whether or C not the appellants

acted jointly in attacking the deceased. This crucial issue was also, it was submitted, not dealt with by the trial judge in his judgment.

Finally Mr. Rugarabamu submitted that on the evidence of PW.1 the second appellant could not be said to have aided and abetted the commission of the offence. In D support of his argument the decision of this Court in Damiano Petro and Jackson Abraham v R. [1980] TLR 260 was quoted.

The learned defence Counsel asked the Court to allow the appeal and acquit the appellants. E

The Republic on the other hand supported the conviction of both appellants. Mr. Magoma, learned Senior State Attorney, who represented the Republic, was of the view that the gentlemen asessors' opinion that the appellants were not adequately identified was unsupportable in view of PW.1's testimony. It was submitted that from F the evidence of PW.1 he was standing only about seven paces from where the deceased was being assaulted and that as such he could not have failed to identify deceased's assailants in broad day light. The learned Senior state Attorney submitted that PW.1 was a stranger to the appellants and that there was no suggestion, leave G alone evidence, that he had reason to tell lies against them.

As for the argument that the second appellant did not participate in attacking the deceased Mr. Magoma submitted that the evidence by PW.1 showed that the 2nd appellant held the deceased while the 1st appellant was belaboring him with a stick. H It was the learned Senior State Attorney's argument that the facts in Damiano's case (supra) were easily distinguishable from the facts in this case. The learned State Attorney argued that in Damiano's case the second appellant was merely present at the scene of crime while the 1st appellant was attacking the deceased. In the present case I it was argued that the second appellant aided and abetted the

assault of the deceased by holding him while the 1st appellant attacked him. The A learned Senior State Attorney asked the Court to find that the appellants were properly convicted of the offence of murder and that the appeal should be dismissed in its entirely.

After having read the evidence tendered in the High Court it is clear that the case for B the prosecution stood or fell on the testimony of Salvatory Tibenda, PW.1. The witness said in his evidence, inter alia:

> When we got to the hill I saw these two accused persons assaulting a certain young man C using thick sticks - about the size of my arm. It was the first accused who was using the stick. The second accused was holding the young man and was pulling him. There were other people who just stood watching. I asked them why they were assaulting him. The first accused said that the young man had stolen a radio. I told them that it was better for D them to take him to police rather than assaulting him. But they continued to assault the man so I and Faustin took our bicycles and left the scene.
>
> E I saw the first accused hit the man on the forehead.

The witness also told the Court that it was his first time to see the two appellants and that he heard one old man who was at the scene calling the appellants by their names saying - "Christian and Rwekaza stop assaulting a person you know". According to F PW.1's testimony it was he

who reported to the police the assault of the deceased by the appellants mentioning their names as Christian and Rwekaza.

From the evidence of B. 7971 SGT. James, (PW.4), on 2/6/88 he was investigating a G case in which Gervas Lukaito, the deceased, was the complainant. He complained that the first appellant, Christian Kake, had maliciously damaged his bicycle. On being interrogated Christian Kake admitted damaging deceased bicycle and that he did so because he had seen the deceased making amorous advances to his wife. They were H reconciled and the first appellant promised to repair the bicycle whose damage was estimated at Shs. 5,000/=. According to the evidence of Sergeant James he had known the 1st appellant before the bicycle incident when he (1st appellant) had a case with his father.

In assessing the evidence of PW.1 the learned trial judge said, inter alia: I

1992 TLR p305

OMAR JJA, RAMADHANI JJA, MNZAVAS JJA

A Where the evidence of visual identification is that of a single witness such evidence must be very narrowly examined and usually the Court will look for some corroborative evidence, be it direct or circumstantial, particularly where the circumstances did not favour a correct identification.

B In the present case, the first point to consider is the credibility of PW.1 ... I was impressed by his simplicity of manner and the straight forward manner in which he answered questions. ... I saw nothing in his demeanour to suggest that he had been tutored or was embellishing his story. This witness was a stranger to the accused persons and so he had no reason to frame any of the accused persons. C

The learned judge then concluded that he was satisfied that PW.1 had ample opportunity to identify the two accused persons as the people who fatally attacked the deceased. D

We would first like to deal with the evidence that tended to implicate the first appellant with the death of the deceased. As already stated above the prosecution case wholly depended on the testimony of PW.1 In his assessment of PW.1's evidence the trial judge was, (unlike the three assessors who sat with him), satisfied that PW.1 was a E credible witness. Mr. Rugarabamu, learned defence Counsel, will no doubt agree with us on reflection that the learned judge was in a better position to assess the credibility of the witness that this Court which merely reads the transcript of the record. He saw and heard the witness as he testified; an advantage which we do not have. F

Dealing with the question of credibility of witnesses the Eastern Africa Court of Appeal had this to say in R. v Gokaldas Kanji Karia & Another, [1949] EACA 116:

G Where a case is essentially one of fact, in the absence of any indication that the trial judge has failed to take some material point or circumstance into account it is impossible and improper for a Court of Appeal to say that he has come to an erroneous conclusion as to the respective credibility he attached to the evidence of the Crown witnesses and that H given by the accused.

In his evidence the witness told the Court that he was standing about seven paces from where the deceased was being assaulted and that he saw the first appellant assaulting I the deceased on the

forehead. Apparently PW.1's testimony that the 1st appellant hit the deceased on the A forehead tallies with the medical report - exhibit P.1, which was to the effect that the deceased had suffered fracture of the skull on the frontal bone. Cause of death was given as intracranial and extracranial hemorrhage secondary to head injury.

This clearly demonstrated that PW.1 told the truth when he said that he saw the first B appellant attacking the deceased on the forehead with a stick. From the evidence of the doctor exhibit P.1, it was clear that it was the assault of the deceased on the forehead with a stick that caused deceased's death.

That being the position we are satisfied that the learned trial judge was right in C convicting the first appellant, Christian Kake, with the offence of murder as charged. His appeal is accordingly dismissed.

As for the second appellant, Rwekaza Bernard, the most that PW.1 said about him in D connection with the assault of the deceased on the material day was that he held and pulled the deceased. Nowhere in his evidence did the witness say positively, (as he did in respect of the first appellant) that the second appellant assaulted the deceased with any weapon. Apparently both in his judgment and in his summing up to the gentlemen E assessors the learned trial judge did not deal with the crucial question as to whether the doctrine of common intention applied so as to make the second appellant also answerable in the killing of the deceased. In a somewhat similar situation two accused (E and L) and others set upon the deceased, L held him and others beat him. E F caught hold of him, twisted his neck, dislocating it. Deceased died as a result.

The Eastern Africa Court of Appeal held that "L could only be convicted of murder if it was established not only that he was holding the deceased while accused E was twisting his neck, but that he was identified with E's purpose". See R. v Enok Achila and G Another (1941) 8 EACA 84.

If the above decision is anything to go by the most that could be said about the second appellant is that he held the deceased while the 1st appellant dealt him the merciless fatal blow. To find the 2nd appellant guilty of murder it has to be proved that he was H identified with first appellant's brutal purpose - That of causing deceased's death or causing him grievous bodily harm. After a lot of deliberation and reflection it is our considered opinion that to say the second appellant was guilty of murder because he held the deceased while the 1st appellant fatally attacked him would be too broad a I statement of the law.

Although second appellant's defence, like that of his co-accused, was a A cock-and-bull story of what happened on the material day; and it must be conceded that he obviously has a talent for fiction; an accused ought not to be convicted on the weakness of his defence but on the strength of the prosecution case.

We are satisfied in our own minds that on the evidence it would be dangerous to B support the conviction of the 2nd appellant. The conviction for murder is accordingly quashed and the sentence of death is hereby set aside. The second appellant Rwekaza Bernard is to be released from custody forthwith unless he is otherwise lawfully held. C

Appeal dismissed.

1992 TLR p307

D

[zRPz]ALBERT BRAGANZA AND ANOTHER v MRS FLORA LOURDIN BRAGANZA 1992 TLR 307 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Makame JA

14 October, 1992 E

Flynote

Civil Practice and Procedure - Stay of execution - Necessity of reasonable grounds for its grant.

-Headnote

The respondent filed an application in the Resident Magistrate's Court for an interim F grant of letters of administration in respect of the estate of her deceased husband which was, at the time, in the mortuary. She granted her husband to be interred in Dar es Salaam but the two appellants, relatives of the deceased, granted interment to be done in Tanga, the deceased's hometown. The Resident Magistrate's Court declined to G entertain the matter for want of jurisdiction. The application was filed again in the High Court and it was granted by Mkude, J. There was also evidence that the respondent, on the basis of the High Court Order, had arranged to have the body buried in Dar es Salaam at 4 o'clock on the same afternoon. The appellants filed a notice of appeal H and an application showing they fully requested, inter alia, for stay of execution of the orders of Mkude, J.

Held: (i) There was no compelling reason for ordering a stay of execution in the I circumstances of this case;

1992 TLR p308

MAKAME JA

A (ii) it is not in public interest for a dead body to remain unburied for so long.

Case Information

Application refused.

Mbuya, for appellant. B

Lyimo, for the respondent.

[zJDz]Judgment

Makame, J.A.: This application arises from a sorry situation which is not so much bizarre, but rather eerie: The deceased, a person called Joseph Philip Braganza set in C motion rival efforts in court to have his dead body buried in Tanga or in Dar es Salaam. His widow, the respondent,

wanted the burial to be here in Dar es Salaam, which she says is her intended new home with her four children, while his siblings, represented by the two applicants, wanted the interment to be in Tanga, his home-town. Mrs. Flora D Braganza applied to the Resident Magistrate's Court at Kisutu for an interim limited grant of Letters of Administration in respect of the estate of her deceased husband and one of the purposes of such a move was said to be to enable her "to make decisions in respect of the disposal of the body of the deceased". The application was brought E under a Certificate of Urgency and the present respondent was represented by Mr. Mbuya, learned counsel, whereas Mr. Lyimo learned advocate, represented the deceased's siblings and their mother. Rugazia, learned Senior Resident Magistrate, declined to entertain the application for want of jurisdiction. Thereafter the present F respondent made a similar application before Mkude, J. of the High Court, who on 30th September, 1992, that is some nineteen days after the death of the deceased, granted her prayer. The learned judge appointed her administratrix pendente lite, and authorized her "to arrange for and determine the place of burial of her deceased G husband."

On 1st October, 1992 a Notice of Motion and a Notice of Appeal were filed on behalf of the present applicants who asked for a Stay of Execution of the Orders of Mkude, J. pending the hearing. The matter was brought under a Certificate of Urgency and on H the following day, in the afternoon the matter was placed before me and I was asked to hear the application, which was ex parte, at extremely short notice. Mr. Lyimo, learned Counsel represented the applicants. At the hearing I was informed that the deceased's widow had arranged to have the body buried in Dar es Salaam at 4 o'clock the same I afternoon, and that put me in an awkward position.

1992 TLR p309

MAKAME JA

I was clear that I was not going to grant the prayer, rolled out of the blanket Prayer A No. 3, that I should order that the burial should be in Tanga. As I said in my brief Ruling the same day, such an order would have gone well beyond the province of a Stay of Execution and would have been outside the jurisdiction of a single judge of the Court of Appeal, because it would have amounted to upsetting Mkude J.'s decision, which B only the Court of Appeal can do. What I found difficult was to consider a Stay of Execution, properly called, without having the advantage of hearing the other side and taking a closer look at the documents filed, because of the very peculiar nature of the situation. I chose what I felt was the least evil, to order only temporary Stay until I C could get a response from the other party. I accordingly ordered a temporary stay and asked that the widow should be served for the following Wednesday, 7th October, 1992. She showed up and was represented by the same advocate who had assisted her in the courts below. The applicants continued with the service of their same lawyer, D Mr. Lyimo.

At the full hearing of the appeal Mr. Mbuya first raised a preliminary objection that there was no proper Notice of Motion filed and that the court was not properly seized of the matter, among other objections. Mr. Lyimo accordingly responded. We agreed, and E proceeded by consent, to hear the substantive application for stay, because of the peculiar urgency of the matter, so as to save time. I indicated then that if at the end of the day I agreed with Mr. Mbuya,

that would be the end of the matter. If on the other hand, I did not, I would then already have material on record on which to dispose of F the substantive matter.
It is indeed the law that this Court would not grant a Stay of Execution not applied for in the High Court in the first place unless there is already a valid Notice of Appeal filed. We have said so many times before. The question now is whether Mr. Mbuya has G succeeded in establishing his contentions. In my view, Mr. Lyimo's documents might have been signed by him and it would appear to be true that "Maxie Chambers" are in fact his outfit. But I am satisfied that the Rules have not been complied with. Section 44 of the Advocates Ordinance requires strict compliance and this is lacking in the H present instance. So the application is in effect irregular.
If I were wrong in this, and it was open for me to consider the substantive matter, this is what I would say: From the submissions by Counsel there is no claim that there is a commonly accepted usage among the Goan sub-community in Tanzania as to who I should

decide where someone should be buried. In the present matter no party can therefore A be said to have a better claim. It seems to me that the centre which holds the Goan sub-community in Tanzania is the Roman Catholic Church, which does not appeal to ordain in such a matter. I would therefore find no compelling reason for ordering a Stay B of Execution till the intended appeal, the more so as the applicants have indicated that they would not contest the grant for the administration of the deceased estate by Mrs. Braganza, per se. Then there is the other consideration that it is revolting that a dead body should remain unburied for so long, in Dar es Salaam or elsewhere in Tanzania, where dead bodies tend to spoil fast, even in mortuary facilities when electric power C is so erratic and unreliable. Public policy would require decently timely interment. I would therefore refuse to order a Stay, in the circumstances.
I hasten to add, for the avoidance of doubt, that I do not use the term D 'sub-community', with reference to Goans, in any derisive sense. I employ it only in the context of 'Community' meaning the wider Tanzanian Community, so smaller groups being lesser than the 'community'.
Because of the foregoing reasons I refuse to grant any further Stay of Execution. Mrs. E Flora Braganza may therefore proceed as allowed by Judge Mkude of the High Court.
Application refused.

F
[zRPz]MAFUMBA JILAWAJI v BUDU MNYAGOLYA 1992 TLR 310 (HC)

Court High Court of Tanzania - Tabora
Judge Korosso J

G
14 October, 1992
Flynote

Tort - Malicious prosecution - Appellant and others arrested on suspicion of stealing respondents' cattle - Ward Secretary reported matter to police - Whether respondent H prosecuted appellant and others.
Tort - Malicious prosecution - Public prosecution - Whether Government can be held vicariously liable.
Tort - Malicious prosecution - Prosecutions conducted by public prosecutors and State I Attorneys - Difficulty of proving prosecution by individual person.
1992 TLR p311
Tort - Malicious prosecution - Prosecution conducted in Primary Courts by private citizens A against other citizens - False imprisonment safest course of action by aggrieved party.
-Headnote
The Appellant and others were arrested by the authority because they failed to respond to a theft alarm as quickly as they ought to have done as villagers. They arrived at the B scene after a lapse of 6 hours. Consequently they became the suspects of the theft of 463 head of cattle, the property of the respondent. It was the ward secretary who reported the matter to the police and the village. The trial District Magistrate dismissed C with costs an action by the appellant and the others for compensation for board, lodging, bus fare and hiring transport.
Held: (i) It is self evident that the respondent was completely unconnected with the initial arrest, detention and the decision whether or not to formally charge the D appellant before a court of law. The suit was frivolous and the appeal should be dismissed with costs;

(ii) Obiter: prosecution is one of the essentials of the sort of malicious prosecution. No plaintiff can ever satisfy this essential in a criminal case, this is because most E prosecutions before District and High Courts are conducted by public prosecutors and State Attorneys;

(iii) Obiter: in Primary Courts prosecutions are conducted by private citizens against other citizens. Where it turns out that the complainant made a report without F reasonable or probable cause and if malice can be proved either expressly or impliedly, the safest course to take on the plaintiff part would be to rely on false imprisonment and incidental expenses incurred in his defence of the charge from the very outset to the time G the prosecution ends in her favour;

(iv) Obiter: whether the Government can be held vicariously liable for malicious prosecution just as much as it can be held vicariously liable for certain negligent acts of its employees is an extremely sensitive and controversial area of law. Time may one H day come when individual citizens will call upon Judges to adjudicate between them and the Government on suits based on malicious prosecutions by law enforcing officers.
Case Information
Appeal dismissed. I
1992 TLR p312
[zJDz]Judgment
Korosso, J.: This is an appeal lodged by the Appellant challenging the decision of A the lower Court. The appellant was one of 7 Plaintiffs who unsuccessfully sued the Respondent for malicious prosecution. The appellant and Co-Plaintiffs claimed as compensation the sum of

Shs.88,400/= for board and lodging, the sum of Shs.29,200/= B for bus fare and the sum of Shs.10,000/= for hiring transport. The learned trial Magistrate dismissed the suit with costs.

In my view the suit was frivolous.

According to the evidence of one Ramadhan s/o Omari (PW.9), the village Secretary, the Appellant and his Co-Plaintiffs were arrested by the village authority because they C failed to respond to the alarm as quickly as they ought to have done as villagers. They arrived at the scene after a lapse of 6 hours. Consequently, the Appellant and Co-Plaintiffs became the suspects of the theft of 463 heads of cattle, the property of the Respondent. According to PW.9 it was the Ward Secretary who reported the matter D to police. It was the Ward Secretary who went to the village in company of the police.

It is selfevident that the Respondent was completely with the initial arrest, detention and the decision whether or not to formally charge the Appellant before a court of law. E

Before I bring the judgment to a close, I intend to observe fairly briefly about the difficulty in providing a case based on malicious prosecution by one individual citizen against the other citizen. Prosecution being one of the essentials of the tort of 'malicious prosecution', no plaintiff can ever satisfy this essential because most prosecutions F before District and High Courts are conducted by Public Prosecutors and State Attorneys. It is a different matter if the complainant conducts a private prosecution.

It is, however, different in Primary Courts where prosecutions are so conducted by G private citizens against other citizens. Where it turns out that the complainant made a report without reasonable or probable cause and if malice can be proved either expressly or impliedly, the safest course to take by the plaintiff would be to rely on false imprisonment and incidental expenses incurred in his defence of the charge from the H very outset to the time the prosecution ends in his favour.

In the course of my dealing with this appeal based on the tort of malicious prosecution, I found myself debating within myself long and seriously on whether or not the Government can be held vicariously liable for malicious prosecution just as much as it I can

be held vicariously liable for certain negligent acts of its employees. This is an A extremely sensitive as well as controversial area. But it is not that impossible to impute malice especially in murder and manslaughter cases where there is profuse evidence that certain suspects are held in custodial confinement for over three or more years when there is little or mere suspicious evidence against the suspects. B

One wonders why these unnecessary incidents of custodial confinement should continue to be of frequent occurrence in our law courts particularly the High Courts when it is common knowledge that we have fairly experienced, learned lawyers manning the C Chambers in all High Court Centres. One still wonders why steps are not being taken by these learned lawyers to enter 'Nolle prosequi' in favour of suspects as soon as it comes to their attention that a certain case is a hopeless hope. Articles 13 (6) of the Constitution is couched in eloquent language touching on individual rights before D Courts of law. Most unfortunately these rights are

indifferently being trampled down as if they were useless chaff without the least excuse or apology to the victims of the 'Administrative Organ of the Government'.

I have fresh in my mind a recent Tabora Criminal Sessions No. 99/89 RVS Maganga E - case which ended with an application for a 'Nolle Prosequi' on 2/9/92 after the suspect had been in custody since April, 1988. When I discharged the suspect, it might have rang in his mind that he was very lucky while what I did was to sadly declare the end of his unnecessary torture and continued loss of personal liberty for a period of F about 4 years. This was a case in which there was not even strong suspicion against the suspect. Conversely, there was the statement of one witness who mentioned the Accused as having gone over to their house, awakened them and then informed then of the misfortune that had befallen the deceased and his wife on the night. This was a G case which a law undergraduate at the University of Dar es Salaam, conducting a mock trial in Nkrumah Hall, would have hastily ruled that there was no case to answer and then acquit the Accused, perhaps with a sigh of sympathy. In a case of this kind and in many other pathetic cases, courts of law are the unfortunate scapegoats. As was in H this case of Maganga, it was the District Court that first signed the warrant committing the suspect to prison. The court ordered his occasional remand in prison until on 2/9/92 when I signed a discharge to restore to him his once lost liberty. I

Another serious, adverse effect of keeping such hopeless cases until sessions take A place is that they deny other suspects the right to be heard at such sessions because their places are being taken up by these selfevidently hopeless cases.

Time may one day come in not a distant tomorrow when these humble citizens of this B free land will screw up their courage and then provoke the wisdom of the Judges by calling upon them to adjudicate between them and the Government on suits based on malicious prosecutions by law enforcing officers.

With the above observations, I come back to the issue before me and I resolve it by dismissing the appeal. C

Appeal dismissed.

D

[zRPz]DIDAS RWAKALILA AND 3 OTHERS v THOMAS MATONDANE 1992 TLR 314 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Omar JJA, Ramadhani JJA, Mnzavas JJA

E

22nd October, 1992

Flynote

Customary Law - Bahaya Customary Law - Whether Musika can be excluded from inheritance.

F

Customary Law - Bahaya Customary Law - Whether the redeemer of clan shamba always becomes its owner.

-Headnote

This was a case over a disputed shamba filed in the Primary Court of Nshamba in G Muleba District on 5/6/1986. The parties found their way to Muleba District Court, the High Court and finally the Court of Appeal. The history of the disputed shamba is substantially narrated in the judgment. The issues contested in the Court of Appeal are whether a person who redeems a mortgaged clan shamba becomes the owner of the H shamba; whether there was adverse possession by the respondent and whether or not the disputed shamba belonged to the respondent.

Held: (i) The fact that the respondent redeemed the shamba and the fact that he had I been in continuous possession of the same since 1966 did not make him its owner;

1992 TLR p315

RAMADHANI JJA, OMAR JJA, MNZAVAS JJA

A (ii) the clan council's decision to divide the shamba among the appellants was equitable.

Case Information

Order accordingly.

Rweyemamu, for appellants B

Alfred Thomas, with power of attorney appeared for the respondent.

[zJDz]Judgment

Ramadhani, Omar and Mnzavas, JJ.A.: This is another protracted litigation over inheritance of a shamba between an uncle, the respondent, and his four nephews, the appellants. The dispute was filed in the Primary Court of Nshamba in Muleba District C on 5/6/1986. The parties found their way to the Muleba District Court, the High Court at Mwanza and now in this Court.

It is appropriate to give a concise account of the facts leading up to this litigation. There was a man by the name of Matondane who had six sons and upon his death his land D was distributed among them. Four of these are known to have died by the time this dispute arose. The fifth brother, Celestin Kikugusi, has been presumed dead as nothing has been heard of him since he went to Uganda in 1932. So only one of the six sons is E alive and this is the present respondent, Thomas Matondane. Two of the deceased brothers, Rwakakile and Francis, are survived by two sons each. These four survivors are the present appellants. The other three brothers; Nshuli, Celestin and Karaba, died childless. The plots of land belonging to two of them, Nshuli and Celestin, have been F inherited by the respondent. In 1982 when Karaba died the clan council decided to divide his shamba among the appellants.

This decision aggrieved the respondent who regarded himself to be the sole heir as the remaining brother. But more particularly he founded his claim upon a will of Karaba. It G was also in evidence that he had twice redeemed the shamba in dispute for Shs.130/= and Shs.70/= during the lifetime of Karaba. Again it was not in dispute that he has been in a continuous possession of the same since 1966 when Karaba emigrated to Kome Island to the time the dispute arose. H

The reasoning of the clan council in coming to the decision they did was plain and simple. They felt that since the respondent already had the plots of the two brothers who had died childless, then this plot in dispute belonging to the third childless brother, should go to the sons of the other two dead brothers. But the respondent was not I moved by that philanthropy. He plucked off

1992 TLR p316

RAMADHANI JJA, OMAR JJA, MNZAVAS JJA

the trees planted to mark the boundaries of the plot of each and did not abandon the A shamba. That sent the appellants to the Primary Court.

It was decided that both parties were entitled to inherit the shamba and that the respondent should have a larger share because, not only was he a principal heir, he B had redeemed the shamba and had soon to its upkeep. It was ordered that the matter should go back to the clan council for a proper distribution. The respondent was dissatisfied with that and appealed.

The District Court upheld the decision of the Primary Court and added that as the C respondent had not been given a hearing at the clan council he should be allowed to participate in its deliberations. That again did not appease the respondent and he went to the High Court.

Mwalusanya, J. found that the shamba belonged to the respondent. The learned judge D concurred with the findings of the two lower courts that the will produced by the respondent was but a sham. It violated the requirements of a will as prescribed by G.N. 436 of 20/9/1963. As Karaba was undisputedly illiterate his will had to be attested to by two clan members and two non-clan persons. This was not done. However, the E court found that the property in the shamba vested on the respondent because he had redeemed it. That finding was come upon on the authority of paragraph 574 of Cory and Hartnoll. The learned judge decided that the shamba belonged to the respondent since 1/12/1966. From that finding Mwalusanya, J. went on to declare the suit by the F appellants to have been time barred under the provisions of item 6 of the schedule to the Customary Law (Limitation of Proceedings) Rules, G.N. 311/1964 since 12 years had elapsed.

The appellants are contesting that judgment on three points of law which were argued G before us by Mr. Rweyemamu, learned advocate.

First, Mr. Rweyemamu said that a person who redeems a mortgaged shamba does not always become the owner of that shamba. He propounded that there are two types of mortgages in Haya customary law. One type gives rise to the ownership by the H redeemer of the morgaged property but the other does not. He argued that the two mortgages in this case were of the second type and therefore the shamba remained to be the property of Karaba until his death in 1982.

As his second point, and arising from the first, Mr. Rweyemamu contended that the I possession of the respondent

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RAMADHANI JJA, OMAR JJA, MNZAVAS JJA

became adverse from 1982 and so, he continued, when the suit was filed in 1986 the A limitation period had not expired. Lastly, Mr. Rweyemamu submitted that as the shamba did not

belong to the respondent and as Karaba died intestate then the clan council was the proper authority to dispute it.

The respondent was represented by one of his four sons, Alfred Thomas, who had a B power of attorney. In all fairness he could not come to grips with the points of law raised. He merely repeated points of fact.

We agree with Mr. Rweyemamu that there are two types of mortgages in Haya customary law. That paragraph 574 which Mwalusanya, J. relied upon from Cory C and Hartnoll provides as follows:

> If the plantation has been pledged on the condition that it will become the property of the creditor failing the repayment of the debt within an agreed time, a relative has the right D to redeem it, even after the time has expired, as an invalid sale; in which case it follows that the plantation becomes the property of the man who redeems it. E

There are two conditions here. First, there must be a time stipulated for the repayment of the loan. Second, upon failure to repay, it must be stipulated that the property becomes that of the creditor. If the two conditions are missing then the plantation falls under the provisions of paragraphs 572 and 573 which say: F

> 572. A plantation under family tenure may be pledged, but any relative may at any time, even in the absence of the owner, redeem it. G
>
> 573. If a relative does so, the payment of the money does not give him possession of the plantation. The redemption money is due to him as a common debt by the owner. H

To us the rationale is very clear. Under paragraph 574 the relative who redeems the plantation steps into the shoes of the creditor. If the creditor could become the owner of the shamba then the relative could be so too. But under the second type of mortgage where the creditor can never become the owner of the I

plantation but is merely entitled to his debt, then a relative who redeems cannot have A a title but a debt.

In the present case the two mortgage deeds, that of 26/9/1966 Exh.D5 and that of 1/12/1966 - Exh.D.6, do not have the two conditions stipulated under paragraph 574. Exhibit D.5 says:

> B Mimi Karabe naweka rehani migomba yangu kwa Venant sehemu ya migomba kwa shilingi mia moja thelathini (130/=). Nitakapopata pesa nitamrudishia aondoke.

Then Exhibit D.6 is couched in these terms: C

> Mimi Karaba naweka rehani sehemu ya migomba kwa Laurent Rutotoza akate ndizi za kula na ndizi kali. Amenipa Shs.70/= (sabini) siku yeyote nikipata nimrudishie zake tu na aondoke kwenye shamba langu. D

It is evident from the two deeds that none of them contain the two terms which would entitle one who redeems to be the owner of the pledged plantation as provided by paragraph 574. It is most unfortunate that none of the lower courts, not even the High E Court, bothered to have the deeds translated from Kihaya.

The learned judge cited Martin s/o Bikonyoro v Celestin s/o Kaikola [1968] H.C.D. n. 87 by Cross, J. and Gabriel s/o Nzizula v Rooza d/o Muyungi [1968] H.C.D. n. 126 by Mustafa, J. (as he then was). Those decisions are sound because the facts fell F squarely on paragraph 574.

Thus the respondent did not become the owner of the shamba in dispute because he had redeemed it twice as evidenced by Exh.D.5 and 6. The shamba remained that of Karaba and upon his death reverted to family tenure to be inherited. For the sake of G completeness the shamba did not even become of the respondent because he has been in continuous possession from 1966 when Karaba left for Kome Island. Paragraph 511 of Cory and Hartnoll provides:

H Actual occupation of land confers no title, no matter how long it has been occupied.

It follows from the above exposition, and as properly submitted by Mr. Rweyemamu, I that there was no question, of

limitation. The occupation by the respondent became adverse to the interests of the A family when Karaba died in 1982 and the suit was filed in 1986.

It is also evident from the above holding that the respondent cannot and is not entitled to any extra claim on the shamba because of having redeemed it or of long possession. B For redemption he is entitled to a refund of the moneys he had paid and for possession and therefore the upkeep of the shamba, he enjoyed the proceeds from the same as was properly held by the clan council.

We come now to the crucial matter for determination. As Karaba died childless and intestate who as between the parties has a better claim of inheritance? C

Cory and Hartnoll give three grades of heirs. Paragraph 2 of Cory and Hartnoll say:

Three grades of heirs proper are recognised:

A. THE MUSIKA - primary heir D
B. THE MAINUKA - secondary heir
C. THE KYAGATI - minor heirs

Paragraph 3 provides who are the MUSIKA. What is relevant to the present case reads as follows: E

... The Musika of a man who leaves no descendants in direct line is one of his brothers ...

So, here the respondent is definitely the Musika of Karaba. F

Was the clan council wrong to come to the decision they did? We cannot answer that in the affirmative. There is a NOTE to paragraph 3 which is very eloquent and operates as equity to soften the vigours of law. The NOTE goes: G

Unless a man has sons his immovable property is inherited by one of his relatives who is chosen by family council. Therefore, if he has brothers, the oldest need not necessarily inherit. For example: If there is a brother who has none or only a small plantation he H may be chosen to inherit. If the plantation is capable of providing two families with livelihood it may be divided between the two relatives.

I On this chosen relative's death the plantation is inherited by his heirs in the usual way.

RAMADHANI JJA, OMAR JJA, MNZAVAS JJA

In the present case the respondent already has his own plot out of the six into which A the shamba of the old Matondane was divided. He also has the two parts which had belonged to his two deceased childless brothers. Thus he has three parts out of six which he will pass on to his four sons. On the other hand the four appellants, who are B the heirs of the other two brothers of the respondent, have only a plot for each pair. So as between the respondent, and the appellants the latter have smaller plantations than the former and this NOTE to paragraph 3 was meant for them. No wonder the clan council decided the way it did.

In fact that principle of equity transcends the Haya customary law. For example, in C the division of land paragraph 75 provides that "the Musika shall inherit enough land to provide him and his family with a livelihood. The interests of the other heirs are a very secondary consideration". However, there is a NOTE again ameliorating the hardships which could be caused: D

> In practice distribution is affected by many different circumstances, for instance in the case of one of the lesser heirs having a large family, he may be granted a larger share than is really his just due; ... E

We are of the firm opinion that the clan council was justified in arriving at the decision they did and did not contravene the Haya customary law and its equity.

But was the respondent condemned unheard? That was the concurrent finding of the F High Court and the District Court. As such, and as this is a third appeal, we cannot make a factual finding though that fact could be argued one way or the other. Be it as it may, we take it as proved that the respondent was absent from the clan council of 17/10/1982. What is the effect of that? G

We can say two things here. One both the Primary Court and the District Court gave orders that this matter be returned to the clan council. The District Court was explicit "that appellant [the respondent now] be given an opportunity to defend himself". But on both occasions the respondent did not favour that and decided to appeal. In fact in H his ground five of appeal to the High Court he said in relevant parts:

> ... ilibainika jinsi wanaukoo walivyojipotosha kutoa mgao wa shamba la marehemu bila kunishirikisha ... mahakama za chini I

A zisingeagiza tena kifanyike kikao kingine cha ukoo wakati hawapo wengine tofauti na hao ...

So the respondent wanted the matter to be settled by the courts where he has been given a hearing. This is what we intend to do.

The second matter is that we are also of the opinion that it is a futile exercise to return B this dispute to the clan council to let them observe that cardinal principle of natural justice. As the respondent has been given a hearing in four different forums and as the decision of the clan council is equitable following the Haya law, we adopt it as our own. The shamba of Karaba to be inherited by the appellants. We order that the clan C council in conjunction with the Primary

Court Magistrate of Nshamba to petition the shamba as between the first and the second appellants on the one hand, and the third and the fourth appellants on the other.

It is in evidence, as already said, that the respondent had redeemed the shamba by D paying Shs.200/=. It has been claimed that he was refunded Shs.100/=. But that was at the clan council. If we take it as settled that the respondent was not at that Council, then it follows that he could not have been repaid. So we order that he be paid his Shs.200/=. Everyone of the appellants to pay Shs.50/=. E

Appeal allowed.

1992 TLR p321

F

[zRPz]B.P. TANZANIA LIMITED v GRUPPO SOGESCA LANARI ESTERIO s.p.a. 1992 TLR 321 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Omar JJA, Ramadhani JJA, Mnzavas JJA

G

22 October, 1992

Flynote

Contract - Agency - Claim for price of fuel - Attachment of truck as security pending determination of suit - Whether reasonable cause for attachment. H

Civil Practice and Procedure - Security - Damages for attachment of property as security - No reasonable cause for filing suit.

-Headnote

The appellant acted as agent of a company based in London, England. There arose a dispute between the appellant and the respondent, a party to the contract with the I London based company.

1992 TLR p322

OMAR JJA, RAMADHANI JJA, MNZAVAS JJA

Because of the dispute the appellant applied for attachment of the respondent's A property to serve as security. Consequently the respondents truck was attached for 538 days. In the High Court the respondent won the case. On the attached truck the Court awarded the respondents Shs. 35,866,666/= for non user.

On appeal the Court of Appeal considered, inter alia, whether the award for B non-user of the truck was justified.

Held: (i) There were, in our view, good reasons calling for the appellant to apply for attachment of respondents property pending judgment; C

(ii) had the plaintiff/appellant properly and carefully weighed his case before filing the suit against the respondent the chances are that he would not have gone to Court and the respondent would have been saved from all the bother of having his truck attached and having to defend the case; D

(iii) the award of Shs. 35,866,666/= for non user of the truck was not only far too exorbitant but also missuported by evidence.

Case Information

Order accordingly. E

Rugarabamu and Mkatte, for the appellant.

Rweyemamu, for the respondent

[zJDz]Judgment

Omar, Ramadhani and Mnzavas, JJ.A.: In this case the respondent company, F Gruppo Sogesca Lanari Esterio s,p,a. (to which we will hereinafter, for the sake of brevity, be referring to as the respondent) entered into a contract with a company registered in London by the name of Tecofi Ltd whereby the later company was to supply the respondent fuel. The terms of the contract are contained in a letter of intent - exhibit D.2. G

It would appear that Tecofi Ltd was to buy the fuel to be supplied to the respondent from another company, B.P. Africa, based in London which company was to ship the fuel to the appellant company at Dar es Salaam for onward transmission to their depot in Mwanza which was to deliver the fuel to the respondent. H

The arrangement for payment for fuel sold and delivered was that B.P. Africa wuld invoice Tecofi Limited for fuel supplied to the appellant company and Tecofi Limited would likewise invoice the respondent who would effect payment directly to Tecofi Limited. Sometime in October there arose a dispute between the appellant company I (B.P. Tanzania Limited) and the respondent company

whereby the former company alleged that the latter company had failed to pay for fuel A sold and delivered to it despite repeated demands. The value of the fuel delivered was said to be in the tune of Shs.9,562,725/=. Eventually the appellant company filed a suit in the High Court against the respondent company on 25/10/89 claiming the amount. B

After the respondent company had filed a W.S.D. and later an amended W.S.D. and the appellant company had filed amended reply to the amended W.S.D. containing a counter claim the appellant company reduced the claim of Shs.9,562,725/= to one of Shs.3,758,952/15. C

The following issues were agreed upon:

1. Whether the supply of fuel by the plaintiff/appellant to the defendant/respondent was governed by any contractual relationship between them or just motivated by contractual D relationship between Tecofi Ltd and B.P. Africa Ltd of London.

2. Whether Tecofi Ltd did buy and consign fuel to the defendant through the plaintiff, and E if so, how/much and in which measurements.

3. Whether the defendant/respondent did exhaust stock as consigned through the plaintiff/appellant, and if not, what is the balance due to the defendant/respondent. F

4. Whether the defendant/respondent did overdraw fuel from the plaintiff/appellant exceeding his stock at the time claimed by the plaintiff/appellant, and if so, how much.

G 5. Whether the plaintiff/appellant had any justification to seek for the attachment of the defendant's truck, and if not, what damages is the defendant/respondent entitled to.

H 6. Relief - (Here it may have meant to what reliefs are the parties entitled to).

After hearing evidence from both sides the High Court, (Moshi, J.), was satisfied that the respondent company had neither overdrawn gas oil nor petrol from his stock with I the appellant company. On the contrary the learned trial judge hold that the

1992 TLR p324

defendant/respondent had still 518,287 litres of gas oil and 54,4411 litres of petrol in A his stock held by the plaintiff/appellant and ordered that the plaintiff/appellant delivers this fuel or its money equivalent to the defendant/respondent. The Court also ordered that the plaintiff/appellant pays coss.

As for the attachement of defendant's/respondent's truck it was the learned judge's B opinion that there was no sufficient cause to make the plaintiff company apprehensive that the defendant company was disposing its working tools so as to leave the jursidiction of the Court to the detriment of plaintiff's interest. For this reason it was the trial Court's conclusion that there was no need for the plaintiff company to apply for C attachment of defendant's truck pending hearing of the suit.

The Court therefore concluded that the defendant company was entitled to be compensated by the plaintiff company for non-user of his truck for the whole period it remained attached. D

It agreed with the defendant/respondent that the truck used to fetch Shs.100,000/= per day according to Ministry of Works scale. As the attachment of the truck lasted for 538 days (From 8/11/89 to 30/4/91 when attachment was raised) the Court found that the amount due for the defendant for non-user of the truck was Shs.100,000 x 538 days E which came to 53,800,000/=. The trial Court however took into account that there were Sundays, public holidays, days when the truck went for maintenance etc. when the truck would not be in use. The Court therefore deducted one third from the amount of F Shs.53,800,000/= which came to Shs.17,933,333/= and awarded the defendant/respondent Shs.35,866,666/= for non-user of the truck.

The Court then proceeded and dismissed plaintiff's case with costs.

Dissatisfied with the whole judgment of the lower Court the plaintiff has appealed to G this Court.

Mr. Rugarabamu and Mr. Mkatte, learned Counsel, appeared for the appellant company. In his submission Mr. Rugarabamu argued that the learned judge's finding that supply of oil to the respondent was in metric tons only was erroneous. H

It was the learned Counsel's submission that DW.1 agreed in his evidence that he received from the appellant 6,321,417 litres of gas oil. In support of his argument the Court was referred to page 37 of the proceedings. It was also argued that the respondent conceded in his defence in the High Court that he had received 203389 I litres of petrol; and that in all the appellant had supplied a

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OMAR JJA, RAMADHANI JJA, MNZAVAS JJA

total of 559,589 litres of petrol to the respondent without payment. In support of his A argument the Court was referred to the evidence of PW.1 at page 31.
The Court was also referred to exhibit P.4 which was said to be a summary of oil the respondent had withdrawn.
It was the learned Counsel for the appellant's argument that some of the fuel was B supplied to the respondent in cubic metres and some in metric tons.
As for the award of damages to the respondent for non-user of his truck as a result of the attachment of the truck pending determination of the suit, the learned Counsel C submitted that the appellant was entitled to file an application for attachment of the truck as there was evidence that the respondent was disposing his property; some of which had left the country. In support of his submission the Court was referred to page 21A of the proceedings.
It was also argued that later the appellant and the respondent agreed before the judge D that the respondent offers only two trucks as security. The Court was referred to the same page - 21A.
At a later date the respondent applied to the Court seeking variation of the terms of security, the application was granted and only one truck was offered as security. E
As for the argument that the truck earned Shs.100,000/= per day Mr. Rugarabamu argued that there was no officer from the Ministry of Works who testified that the truck earned such amount per day. The Court was asked to allow the appeal with costs.
In rebuttal Mr. Rweyemamu for the respondent argued that exhibit D.1 was a letter of F intent and not a contract. He argued that 5900 metric tons of gas oil was bought in eight separate contracts. To fortify his argument the evidence of DW.1 at page 37 of the proceedings was referred to us. Mr. Rweyemamu submitted that the letter of intent exhibit D.2 and the invoices in respect of the gas oil supplied showed that the fuel was G all the time supplied in metric tons.
It was the learned Counsel's argument that B.P. African was not called to testify that some of the fuel was supplied in cubic metres nor, it was argued, one, Muro. Mr. H Rweyemamu submitted that the appellant had problems in safe-keeping their documents and that this occasioned the confusion in their evidence regarding the manner the fuel was supplied. Mr. Rweyemamu further argued that had the appellant, communicated with his principal in London the confusion as to whether or not some of the fuel was I delivered in cubic metres would have been resolved. In support of his argument
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OMAR JJA, RAMADHANI JJA, MNZAVAS JJA
the provisions of section 166 of the Law of Contract Act were quotted: A
Section 166 of the Law of Contract says:

> It is the duty of an agent, in cases of difficulty, to use all reasonable diligence in B communicating with his principal, and in seeking to obtain his instructions.

The Court was also told that the respondent always purchased fuel from the appellant whenever their stock was exhausted. To fortify his argument the Court was referred to C the evidence of Mamforo Lema, (PW.3) on page 34.

It was the defence case that the appellant refused to produce bills of lading because if they did it would have prejudiced their case.
In this case the claim by the plaintiff/appellant stood or fell on the evidence of PW.1, D PW.2, PW.3 and PW.4.
From the testimony of DW.1 the respondent used to get his supply of fuel from the appellant as supplied to them by Tecofi Limited through B.P. Africa Limited. The Letter of Intent v exhibit D.2 between the defendant/respondent and Tecofi Limited clearly E stipulated that fuel would be supplied to the defendant/respondent in metric tons.
From the evidence the appellant claimed that between the month of June 1986 and October 1988 the respondent had drawn 6321417 litres of gas oil and that from July F 1988 to July 1989 had drawn 205,589 litres of petrol. This, according to the appellant company amounted to an overdraw of 5,509 litres worth a total sum of Shs. 3,758,952.15 the subject matter of the suit filed in the High Court.
The respondent company did not dispute receipt of 6321417 litre of gas oil from the G appellant company but countered that it was supposed to receive 5,900 metric tons of gas oil and 200 metric tons of petrol from Tecofi Limited through the appellant company. Each metric ton was, according to the respondent, equal to 1159 litres. This H formula was the one agreed between the appellant and Tecofi Limited and, according to the respondent, it is an international formula. According to DW.1's evidence the fuel was supplied to the respondent through the appellant in eight separate contracts as shown in the invoices - exhibit D.1. Apparently even PW.1 conceded in his evidence I that the invoices showed that the fuel was supplied in metric tons.
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OMAR JJA, RAMADHANI JJA, MNZAVAS JJA
It was argued by the respondent that using the agreed conversion formula the 5900 A metric tons of gas oil came to 6,839,704 litres of gas oil and the 200 metric tons of petrol came to 231,800 litres. These were the litres of fuel the respondent was to receive from the appellant company. The defendant/respondent argued that having received 6,321,417 litres of gas oil from the plaintiff/appellant as per exhibit P.1 there B remained 518,287 litres of gas oil the respondent had to collect from the appellant. It was argued that using the same conversion formula the respondent had under collected 26,944 litres of petrol. This gave rise to the counter-claim by the respondent in his amended W.S.D. The respondent denied having taken fuel on loan from the appellant. C According to his defence he used to buy fuel by cash whenever his supply from Tecofi Limited had exhausted. In support of his argument that he used to pay cash for fuel the respondent produced cash payment receipt - exhibit D.3. D
Mr. Rugarabamu learned Counsel for the plaintiff/appellant on the other hand argued that the purchase and consignment of the fuel was supplied in both metric tons and cubic meters.
Our observation in this case and especially taking into account the Letter of Intent between Tecofi Limited and the defendant/respondent - exhibit D.2, it is clear that the E purchase and consignment of fuel to the respondent by Tecofi Limited was to be in metric tons. That was the agreement. With respect to Mr. Rugarabamu learned Counsel for the appellant, there was no

cogent primary evidence to counter the argument by Mr. Rweyemamu, learned Counsel for respondent, that the fuel was supplied in metric F tons as stipulated in the Letter of Intent.
It is also evident from the invoices from Tecofi Limited - Exhibit D.1 that all the consignments were in metric tons.
Bearing in mind that there was no dispute that the respondent received from the G appellant 6,321,417 litres of gas oil and 205,589 litres of petrol this amount is to be deducted from 5900 metric tons of gas oil and 200 metric tons of petrol the appellant received from Tecofi Limited for the respondent.
Using the conversation formula supplied by Tecofi Limited 5900 metric tons of gas oil H comes to 6,839,704 litres of gas oil (One metric ton being 1159.27 litres)and the 200 metric tons come to 231800 (approximately) litres of petrol.
If the amount of 6,321,417 litres of gas oil and 205,589 litres of petrol already received by the respondent is deducted from the amount held by the appellant as shown above, I it follows, as night

follows day, that the appellant still has 518,287 litres of gas oil and 54,411 litres of A petrol belonging to the respondent.
As for the argument that the respondent used to take fuel on credit when his stock had exhausted this is countered by no lesser a person than the appellant company's own stocks and sales accountant - PW.3. B

He said on page 34 of the proceedings inter alia:

The defendant bought on cash basis and cash sale was raised. They had paid cheque No. F. 113115 ... they requested us to deduct the 8,000 litres earlier purchased from us. C We issued them B.P. cheque No. 39317 of 22.2.89 - amount Shs. 420,876.80.

On page 35 on cross-examination by Mr. Rweyemamu he said inter alia: D

As on 10/5/89 there were 76,507 litres of motor gasoline and 813051 litres of gas oil due to the defendant company. We concede we had defendant's stock of motor gasoline during the same period when the defendant company was supposed to have withdrawn E the same ... When the defendant company did not have stock with us they used to buy products from us by cash.

That being the evidence from plaintiff's accountant and taking into account that we F have, we hope amply demonstrated above, we are fully satisfied that the preponderance of probabilities weighed heavily against the plaintiff/appellant.
We see no good reason to differ with the learned judge's finding that the applellant G still owes the respondent a total of 518,287 litres of gas oil and 54,411 litres of petrol or their money value.
As for the award of damages for the attachment of respondent's truck we, with respect to the learned trial judge, do not agree with his reasoning that the appellant had no reasonable cause to apply for attachment of respondent's property pending H determination of the suit. If Mr. Rugarabamu's submission before Munyera, J. (as he then was), is anything to go by the respondent was in the process of disposing his property. A trailer TZ 1274 with a cement mixer

on it and one caterpillar earth mover had already crossed the border to Kenya. There were in our view good reasons calling I for the appellant to apply for attachment of respondent's
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OMAR JJA, RAMADHANI JJA, MNZAVAS JJA
property pending judgment. May be it is also not irrelevant to mention that later the A parties recorded a consent agreement that only two of respondent's trucks should be attached.
Finally the respondent applied for variation of order of attachment and the Court ordered that only one vehicle should be attached. The second truck was released to him. B
As for the argument that the truck earned Shs. 100,000/= per day there was only the bare word of the respondent that this was in accordance with the Ministry of Works scale. It would have shed more light if an officer from the Ministry of Works was called as a witness in connection with the claim of Shs. 100,000/= per day which was not a C small amount.
However we agree that had the plaintiff/appellant properly and carefully weighed his case before filing the suit against the respondent the chances are that he would not have gone to Court and the respondent would have been saved from all the bother of D having his truck attached and having to defend the case.
We have no doubt in our minds that the award of Shs.35,866,666/= for non-user of the truck was not only far too exorbitant but also unsupported by evidence. The award of Shs.35,866,666/= is accordingly hereby set aside. E
After a lot of deliberation and reflection we are of the opinion that if the respondent had decided to pay cash as security, instead of his truck being attached, he would have been required to pay not less than Shs.3,758,952/15 the amount the appellant was claiming. The amount of 3,758,952/15 paid as security would fetch an interest of 30% per year F in a fixed deposit. This will mean that the respondent would be entitled to about Shs. 1,691,527/= interest for the 538 days his money remained in Court.
We are of the considered opinion that justice will be served if the respondent is paid Shs.1,691,527/= for non-user of his truck. It is so ordered. G
Order accordingly.
1992 TLR p330
A
[zRPz]SHIHOBE SENI AND ANOTHER v REPUBLIC 1992 TLR 330 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Omar JJA, Ramadhani JJA, Mnzavas JJA

22 October, 1992
Flynote
Evidence - Confession - Whether a village chairman is a person in authority - Section B 27(3) Evidence Act.

Evidence - Discrepancy with respect to dates - Witnesses illiterate - Whether to take them literally on the dates they mention.
Evidence - Confession - Repudiated Confession - Repudiation during defence stage - C What court to do.
-Headnote
The appellants were convicted of murder and sentenced to suffer death by hanging. They appealed against both conviction and sentence attacking the evidence on the D basis of which they were convicted. The appellants were said to have made confessions which they later repudiated. Some of the confessions were made to the village chairman.
Held: (i) A village chairman is a person in authority under section 27(3) of the E Evidence Act and so a confession made to him is involuntary if the Court believes that it was induced by any threat, promise or other prejudice. There is not a thread of doubt that the confessions to the village chairman were not induced by threat, promise or other prejudice; F

(ii) As the confessions were repudiated then there was a need for ascertaining their reliability and/or seek corroboration but the learned trial judge did not even warn himself of that requirement;

(iii) on the evidence, the repudiated confessions cannot be anything but true and a G conviction can be grounded on them - Tuwamoi v Uganda [1967] E.A. 84;

(iv) in case of illiterate witnesses, it is not fair or desirable to tie them down too closely to estimates of time. On a careful review of the whole of the evidence the discrepancies relied upon by the defence were apparent rather than real. H
Case Information
Appeal dismissed.
Matata, for the appellant.
Boaz, for the respondent. I
1992 TLR p331
[zJDz]Judgment
Ramadhani, Omar and Mnzavas, JJ.A.: The appellants, Shihobe Seni and Jisinza A Samwel, were convicted of the murder of Kasanga Kabadi at Nsana Village in Kahama District, Shinyanga Region. The killing was on 19/4/1987. They have been aggrieved by that decision of Korosso, J. and the punishment of death passed on them and so have come with this appeal before us. B
The deceased disappeared as from 19/4/1987 and on 23/4/1987 his wife reported that to appellant 2, their ten cell leaders, who, in the company of the deceased's son, contacted the village Chairman, Mabala Dali (PW.1). A search was mounted involving villagemates among whom were the appellants; PW.1; the commandor of Sungusungu, C Robert Nonga (PW.1) and one Lusuka Salama (PW.4). After three days the putrid corpse was located some two miles away at Mulidobo Village in Urambo District, Tabora Region.
PWs 1, 2 and 4 ascribed the discovery to the confessions of the appellants who then D led the villagers to that location. Indeed the appellants are also said to have confessed to D/Sg. David (PW.3) to the fact of killing and that of being ushers to the search party. These statements were produced as Exh. P.1 and P.2.

The appellants, however, at the trial repudiated the statements as well as the E confessions to PWs. 1 and 2. They denied having taken the searchers to the dead body. In fact they claimed that there were two search parties and that the one which stumbled on the corpse did so because of birds which flocked over the spot and a dog of the deceased's son which was attracted by the foul smell. F

Mr. Matata, learned Counsel, represented both appellants while Mr. Boaz, learned State Attorney appeared for the respondent/Republic. Mr. Matata had four grounds of appeal which were: first, that the verbal confessions to PWs. 1 and 2 were involuntary and should not have been relied on; second, that the discovery of the dead body was G a result of the combing of the area by the villagers and not because of the action of the appellants; third, that the confessions to PW.3 were also not voluntary; and lastly, that the repudiated confessions required corroboration which was wanting.

As for the first ground Mr. Matata said that the confessions to PWs. 1 and 2 were H extracted by torture. He lamented that though the learned trial judge acknowledge the notoriety of the Sungusungu on the question of torture, yet accepted them hook, line and sinker. The learned advoate pointed out that PW.1 testified that the confessions were given at 2 a.m. He submitted that this fact was pregnant with significance. However, I Mr. Boaz countered that by

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saying that it did not mean that the interrogation was conducted throughout the night. A

All we can say is that the evidence of PW.1 is not clear on whether the interrogation was continuous or not. In any case PW.2 said that it was adjourned to the next morning when the appellants let the cat out of the bag. Be it as it may, PWs. 1 and 2 were B resolute that torture was not administered and they were not controverted. Tortue was only alleged by the appellants in their defence.

Then Mr. Matata argued that those confessions were not admissable for another reason. C He pointed out that PW.2 was a member of the Sungusungu and as such under the provisions of section 3 (1) of People's Militia Laws (Miscellaneous Amendments Act, 1989 No. 9 of 1989) he was equated to a Police Constable. then, Mr. Matata added, under section 27 (1) of the Evidence Act, 1967 a confession voluntarily made to a D police officer is admissable. However, he cautioned, a police officer is defined in section 3 of the Evidence Act to be a member of the Police Force of or above the rank of Corporal. The learned Counsel then submitted that PW.2 was not a Police Officer under the Evidence Act and hence a confession made to him, even if voluntarily, could E not be proved against the appellants under section 27. We agree with Mr. Matata in this contention. However, Mr. Boaz replied that the confession was made to the village assembly and not to PW.2.

That is not clear from the record. PW.2 kept referring to "we" throughout and also F admitted that the members of Sungusungu were around in their attire. There is no evidence that there was a village assembly. There were just villagers who had responded to the alarm and were participating in the search of their colleague. In any case if there is reasonable doubt then it is resolved in favour of the appellants. G

Mr. Matata also argued that PW.1 as the village Chairman was a person in authority and so under section 27 (3) of the Evidence Act a confession made to him is involuntary if the Court believes that it was induced by any threat, promise or other prejudice. In this case, he argued, they were induced by threats and tortures. Mr. Boaz submitted H that a village Chairman is not a person in authority under section 27. He referred us to Masasila Mtoba v R [1982] T.L.R. 131.

Again we agree with Mr. Matata that PW.2, as the village Chairman, was a person in authority. In Mtoba's case the High Court of Tanzania (Katiti, J.) held that a Ward I Secretary was not

such a person in authority. But as properly pointed out by Mr. Matata in the case of A Mayaya Ngolela v R Cr. App. 130 of 1990 (CAT) (unreported) we held that a village Secretary was such a person in authority. So PW.1, the village Chairman, was even more so. However, there is not a shred of doubt that the confessions were not induced by threat, promise or other prejudice. Therefore we cannot fault the learned trial judge B for not holding them involuntary.

In the second ground Mr. Matata contended that the corpse was found because of the perseverance of the searchers and not the work of the appellants. He said that PW.1 C had deposed that the dead body was come upon on 25/4/87 whereas PW.2 said that the confessions were obtained on 28/4/87. He submitted then that the body could not have been found because of the confession. He beefed up this submission by pointing out that appellant 2 in his defence was very emphatic that the interrogations were after D the discovery. In any case, Mr. Matata argued, if the appellants had volunteered to take the villagers to the corpse then there was no need of there being two search parties.

Mr. Boaz, on the other hand remarked that PWs. 1, 2 and 4 were mere peasants who would ordinarily not be in a position to refer to dates with precision and so the E discrepancy was to be expected.

It is true that there is discrepancy with respect to dates. We, however, agree with Mr. Boaz that the witnesses should not be taken literally on their dates. Indeed PW.2 himself proved this. He said: "I got the report of his death on 24/4/87 ... We set about looking F for the deceased, but in vain. On the following day we again went about searching for the body of the deceased. That was on 27/4/87". If PW.2 got the information on 24/4/ then the next day must have been 25/4 and never 27/4. It is unfair to take such a person literally on his dates. The case of Mohamed Shah s/o Lal Shah v R. [1939] 6 EACA G 97 has relevance here. The Court held that "in case of African and Asiatic witnesses it is not fair or desirable to tie them down too closely to estimates of time ... on a careful review of the whole of the evidence the discrepancies relied upon by the defence were apparent rather than real". H

We do not subscribe to the blanket and racist generalization of "African and Asiatic". We agree with the preposition but would correct it and refer to illiterate people of whatever race. Thus PWs. 1 and 2 being illiterate peasants the discrepancies relied upon by Mr. Matata were apparent rather than real. I

We again agree with Mr. Boaz that what was vital was the information by all the three A witnesses that the search took three days and that it was after the confessions that the appellants took the villagers to their discovery. This was not controverted.

Admittedly, the question of Mr. Matata that if the appellants had volunteered to act as B guides, then there was no need to have two search parties, is very valid. However, the existence of two groups was the story of the appellants only. It must be pointed out, though, that they were not contradicted on that just as they had not also cross-examined PWs. 1, 2 nd 4 on that point. However, there are their confessions to PW.1 and PW.3. C We shall discuss their reliability later on.

Mr. Matata then attacked the confessions to PW.3 to have been involuntary. He contended that the record does not show that the defence was given an opportunity to object to the production of Exhs.P .1 and 2. Here again Mr. Boaz is right. PW.3 gave D his evidence, offered to tender the statements as exhibits and the learned trial judge recorded "Admitted and market Exh. P. ....". That was the time for objection and from the record it is abundantly clear that the defence did not raise a finger.

However, the observation of Mr. Matata that once the statements were repudiated, E albeit during the defence stage, the learned trial judge should have suo moto checked on the voluntariness, is valid and we shall deal with it in due course.

The last ground was that as the confessions were repudiated then there was a need for F ascertaining their reliability and/or seek corroboration but the learned trial judge did not even warn himself of that requirement. Mr. Boaz conceded that but added that as this is a first appeal then we could step into the shoes of the learned trial judge. That is so.

Could the confession have been false? We fail to answer that in the affirmative. The G details are such that they could not have been concocted. Mr. Matata cautioned that the sort of details were obtainable even from the villagers and that they were not privy to the appellants alone. Let us have a look at them.

Appellant 1 stated that the deceased was a local medicineman to whom he had sent H his wife to be treated for infertility but then the deceased befriended the wife. One day, appellant 1 continued, he found them in flagranto delicto. That was the genesis of appellant 1's hatred against the deceased. So on 18/4/87 appellant 1 disclosed the plot I to kill the deceased to appellant 2 and his father. Appellant 2 gave a very similar account. That information cannot be the

property of every Tom, Dick and Harry. Then both appellants talked of the use of a A "gobore". That was supported by PW.4 who heard an explosion that very day from the direction of the paddy plot of the deceased.

We are of the firm opinion and we entertain no flicker of doubt in our minds that the confusions cannot be anything but true and under the authority of Tuwamoi v. B Uganda [1967] EA 84 a conviction can be grounded on them. We so find.

For the avoidance of doubt we must say that their reliability is in addition to our conviction that the confessions were voluntarily given. Appellant 2 had this to say in cross examination "The members of the 'Wasalama' assaulted us by means of sticks. C I was injured all over the body. I cannot show the injuries on my body because it was 1987 ... I didn't complain to PW.3 because I was confused and also because I knew I would be acquitted in the long run (sic) ..." This explanation is unintelligable and it only confirms that the confessions were voluntary but as an afterthought they sought to D repudiate them.

In fact to be fair to the learned trial judge, he had this to say "I don't believe, however, that the accuseds were subjected to physical torture or else one of the accuseds or all of them would have told the Court how each of them was hurt, injured or in any way E harmed". That in our opinion was an appropriate observation.

We have one comment before we finish. The defence Counsel at the trial, one Mr. Ruta, did not impress us to have been diligent enough in the execution of his duties. He very superficially cross-examined PW.1, one of the crucial witnesses. But worse still, he let F other key witnesses like PW.2 and 3 go unsearched. For those two and also for PW.4 the record shows simply "XXD Mr. Ruta: NIL", We feel duty bound to remark that advocates on dock briefs would see the importance to the Courts of the benefits of their G full assistance. We therefore dismiss the appeals in their entirety.

Appeal dismissed.

1992 TLR p336

A

[zRPz]CHARLES LALA v ABDALLAH MANGI 1992 TLR 336 (HC)

Court High Court of Tanzania - Singida

Judge Mwalusanya J

10 November, 1992

Flynote

Tort - Customary law tort - Law applicable. B

Customary law - Tort - Jurisdiction of courts.

-Headnote

The appellant filed a suit for a claim of damages for malicious prosecution at the Singida District Court. The Court applied English Common Law. He lost the suit and appealed C to the High Court. The appellate Court considered, inter alia, whether the District Court had jurisdiction to entertain the case and the proper law to apply.

Held: (i) Under section 63(1) of the Magistrates' Courts Act, No. 2 of 1984 for D customary law torts of malicious prosecution, defamation, destruction of crops by cattle, negligence etc. both the District Courts and Primary Courts have concurrent jurisdiction;

(ii) since the parties belonged to the same customary law community of the Wanyaturu the trial magistrate should have inquired into two matters: E

(a) Whether among the Wanyaturu there are rules of customary law regarding malicious prosecution which are established and accepted;

(b) Whether from the nature of the wrong of malicious prosecution, it was apparent to the F parties that they would not be governed by customary law of the Wanyaturu;

(iii) in the case at hand the trial magistrate did injustice to the parties by not making an inquiry as to whether customary law was applicable in the circumstances. He just assumed that English common law was applicable; G

(iv) in the case at hand, both under English common law and under Wanyaturu customary law, the appellant had failed to prove his case on a balance of probabilities.

Case Information

Appeal dismissed. H

[zJDz]Judgment

Mwalusanya, J.: This was a suit for a claim of damages for malicious prosecution filed at Singida District Court by the appellant Charles s/o Lala against the respondent Abdallah s/o Mangi. He claimed Shs.200,000/= as damages and he lost the suit and I hence this appeal to this court.

1992 TLR p337

MWALUSANYA J

The practice to the suit are both Wanyaturu by tribe, of Singida District. The learned A trial magistrate assured that the English common law of malicious prosecution was applicable without conducting any inquiry if that law was applicable. According to s.9 (l) of the Judicature and Application of Laws Ordinance Cap. 453: B

Customary law shall be applicable to and courts shall exercise jurisdiction in accordance therewith in matters of a civil nature, between members of a community in which rules of customary law relevant to the matter are established and accepted - except in any case C where it is apparent, from the nature of any relevant act or transaction, manner of life or business, that the matter is or was to be regulated otherwise than by customary law.

In the case at hand it was common ground that parties belonged to the same D customary law community of the Wanyaturu. So what remained for the trial registrar to enquire were two matters:

1. First whether among the Wanyaturu there are rules of customary law regarding E malicious persecution which are established and accepted.

2. Secondly, whether from the nature of the wrong of malicious prosecution, it was apparent to the parties that they would not be governed by customary law of the Wanyaturu. F

Failure to make an inquiry on these two matters was fatal. This is because if these two matters are not, then the court (including the District Court) is obliged to apply customary law as s.9 (l) of Cap. 453 directs. G

Under s. 63 (l) of the Magistrate's Court Act No. 2 of the 1984 for customary law torts of malicious prosecution, defamation, destruction of crops by cattle, negligence etc. both the Primary Courts and District Courts have concurrent jurisdiction. It is only civil suits under customary law involving marriage, guardianship or inheritence and immovable H property, that the Primary Court has been given exclusive jurisdiction - see s.63(l) of the M.C.A. No. 2 of

1984. Section 13 of the Civil Procedure Code No. 49 of 1966 requires all suits to be instituted "in the court of the lowest grade competent to try it" but s. 63 (2) of the MCA provides that s. 13 shall not be read to require any proceedings I of a civil nature to be

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MWALUSANYA J

commenced in a Primary Court. So far a customary law tort of say malicious A prosecution where both the Primary Court and District Court have concurrent jurisdiction, it is quite proper for the District Court to hear such a suit. And that is what is envisaged by s. 7 (3) of the Magistrate's Court Act No. 2 of 1984 and see the decision of Georges C.P. in the case of Kulthum Ally Kara v Yassin Osman B [1969] E.A. 34 (T) and the decision of Seaton J. in the case of Francis s/o Mwijage v Boniface s/o Kabalemeza [1968] H.C.D. n. 341. I have made that extensive exposition only to array any fears that the trial magistrate might harbour that he has no jurisdiction to hear a suit involving a customary law tort. In fact he is obliged to use C the customary law where it is applicable as indicted in s.9 (l) of Cap. 453; and the Tanzania Court of Appeal has emphasized that point with all the command at disposal in the case of Maagwi s/o Kimito v Gibano s/o Werema: Mwanza Civil Appeal No. 20 of 1984 (unreported). D

In the case at hand the trial magistrate did injustice to the parties by not making an inquiry as to whether customary law was applicable to the circumstances or not. He just assumed that English common law was applicable. The trial magistrate should note that English common law is not always applicable, but as s. 2 (2) of Cap. 453 provides, it E is only applicable "in so far as the circumstances of Tanganyika and its inhabitants permit and subject to such qualifications as local circumstances may render necessary. Thus where customary law is applicable the English common law should not be invoked as the inhabitants do not permit it. F

There is a vast difference between the ingredients of the tort of malicious prosecution under English common law the ingredients are:

G (a) That the criminal proceedings have been terminated in the plaintiffs favour;

(b) That the defendant acted without reasonable and probable cause;

(c) That the defendant acted maliciously ie. with improper motive; H

(d) That the plaintiff has suffered some damages.

These ingredients were expounded by the House of Lords in the case of Herniman v Smith [1938] A.C. 305.

In contrast, in almost all our customary laws, ingredient (c) and (d) above are not I essential ingredients. Under most customary

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MWALUSANYA J

laws it is enough if the criminal proceedings terminated in the plaintiff's favour and the A defendant noted without reasonable and probable cause. The difference comes about because under customary law, the foremost consideration in tortious liability is to reconcile the litigants so as to maintain the equilibrium between the two parties and their clans - see T.O. Elias in his book. The Nature of African Customary Law pp. 130 B - 131. Therefore proof of malice is not necessary and proof of damage is not necessary. The position under English common law is

different because under that system of law the object of tortious liability is to compensate the victim for the harm suffered. Thus substantial compensation is paid if damage is proved including vindictive damages. C Under English law judges are not concerned with what goes on between the parties after the verdict. That is why they insist that malice should be proved and damages be proved. Our own traditional African system of delivering justice was a vestibule system D of justice concerned more with the end result of doing justice both to the individual and the community, which is a system of common-sense justice.

I recently had occasion to hear an appeal involving the tort of malicious prosecution under Nyaturu customary law. The case is Marcel Kisiu v Timoth s/o Msuta E Dodoma (PC) Civil Appeal No. 23/1991, judgment delivered on 30/7/1995. The case shows that there are rules of customary law for malicious prosecution under the Wanyaturu, and that the ingredients of that tort are less stringent than the English common law and that the aim is reconciliation with payment of a token compensation F called Mbio Goya Mghongo.

Of course I am aware of the decisions of this court which have decided to engraft the ingredients of the tort of malicious prosecution under English common law into our customary law. See for example El-Kindy J. in the case of Waisirikare v Baraki G [1971] HCD n. 112. And in cases like Festo v Mwakabana [1971] HCD n. 417 and Moris Sasawata v Mattias Malieko [1980] TLR. 158, the District Courts merely assumed that English common law of malicious prosecution was applicable without holding an inquiry as to its applicability. The High Court did not question such an H irregularity. Therefore those decisions are of doubtful authority.

Be that as it may, in the case at hand, both under English common law and under Wanyaturu customary law, the appellant had failed to prove his case on a balance of probabilities. The respondent had every reasonable and probable cause for reporting I the appellant to the Police as a suspect who had stolen his cattle. There was the

evidence of the village Chairman Abel s/o Buko (DW.2) who testified that one Juma A was found with the stolen cow of the respondent. When questioned Juma stated that he had bought the same from the appellant. That is why respondent reported the matter to the Ward Secretary and the police. The appellant did not disclose any malice or improper motive on the part of the respondent in reporting the matter to the proper B authorities. All that respondent wanted is a proper investigation by the appropriate authorities.

In the event this appeal fails. I dismiss the appeal with costs.

C Order accordingly.

D

[zRPz]CHRISTOMOO NGOWI v WILLIAM LUSITO AND ANOTHER 1992 TLR 340 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Mnzavas JA

16 November, 1992 E

Flynote

Civil Practice and Procedure - Court of Appeal Rules - Application for stay of execution - Notice of appeal not lodged.

-Headnote

The applicant was seeking for stay of execution of the orders of the High Court F pending determination of an intended appeal to the Court of Appeal by the applicant. There was no evidence to show that the applicant had lodged notice of appeal against the decision of the High Court. G

Held: As there is no evidence to show that the applicant has lodged notice of appeal against the decision of the High Court the application seeking stay of execution is incompetent.

Case Information

Order accordingly. H

Ballonzi, for the applicant

Marandu, for the respondent

[zJDz]Judgment

Mnzavas, J.A.: This is an application seeking for stay of execution of the orders of I Dar es Salaam High Court Miscellaneous

1992 TLR p341

MNZAVAS JA

Civil Case No. 30/1991 pending determination of an intended appeal to this Court by A the applicant.

In support of the application Mr. Ballonzi, learned counsel for the applicant, argued that the learned judge who ordered execution in Misc. Civil Case No. 38/1991 erred. It was submitted that the High Court had no jurisdiction to entertain an application for B execution in a matter which had already been decided by the district court. In support of his argument the court was referred to s.38 and 13 of the Civil Procedure Code. It was his argument that the pending appeal has reasonable chances of a success.

In rebuttal Mr. Marandu, learned counsel for the respondent argued that an application C to this Court seeking stay of execution can only be entertained when there is an existing appeal before this Court against the decision against which stay of execution is sought.

It was Mr. Marandu's submission that the applicant has not served the respondent with notice of intention to appeal to this Court, if the applicant has in fact given notice of D intention to appeal to this Court.

In reply Mr. Ballonzi argued that the applicant has already lodged a notice of appeal against the decision of the High Court. The learned counsel continued - "We have no E objection to serve the advocate (meaning Mr. Marandu, advocate for the respondent) with notice of appeal. We served the party himself with notice."

The question of notice of appeal featured in respondent's counter affidavit in which the respondent said he was not aware of any notice of appeal by the applicant. The counter F affidavit was apparently not replied to by the applicant.

Rule 76(l) of the Court of Appeal Rules is clear and unambiguous. It says:

G Any person who desires to appeal to the Court shall lodge a written notice in duplicate with the Registrar of the High Court.

The applicant has not proved to this Court that he has filed notice of appeal as provided under Rule 76(1) quoted above. He did not even bother to reply applicant's counter affidavit in which a question was posed as to whether notice of appeal against the H decision of the High Court had been filed by the applicant.

Faced with this question Mr. Ballonzi merely told the Court - "We have already lodged a notice of appeal against the decision of the High Court." I

1992 TLR p342

There is no indication in the record to support Mr. Ballonzi's argument that the A applicant has in fact filed a notice of appeal against the decision of the High Court before lodging his application to this Court seeking for stay of execution. Nor is there evidence to show that the mandatory provisions under Rule 77 which requires the applicant to serve the respondent with copy of notice of appeal have been complied B with.

Rule 9(2)(b) of the Court of Appeal Rules quoted by Mr. Ballonzi only allows this Court to use its discretionary powers and stay execution "where a notice of appeal has been lodged."

As there is no evidence to show that the applicant has lodged notice of appeal against C the decision of the High Court I agree with Mr. Marandu, learned counsel for the respondent, that the application seeking stay of execution is incompetent and it is accordingly struck out.

D Application incompetent.

1992 TLR p342

E

[zRPz]MOHAMED S. AMIRI v SAIDI NGAPWELA 1992 TLR 342 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Mkude JA

18 November, 1992 F

Flynote

Civil Practice and Procedure - Assessors - Magistrate summing up to assessors - Judgment signed by magistrate but not by assessors - Magistrates' Courts (Primary Courts) (Judgment of Court) Rules 1987, G.N. 2 of 1988. G

-Headnote

After hearing a case the Primary Court magistrate summed up to assessors. Each assessor signed after giving his opinions. After writing the judgment the magistrate signed it. No assessor signed the judgment. On appeal counsel for the appellant attacked the H magistrates failure to comply with the rules.

Held: The trial magistrate erred when he purported to sum up to the assessors in what he called Hukumu and also erred when he failed to record the unanimous decision of I the court and call upon the assessors to sign it with him.

1992 TLR p343

MKUDE J

Case Information

Trial a nullity. A

Mdamo/Marando, for the appellant

[zJDz]Judgment

Mkude, J.: This is a second appeal. The appellant Mohamed Saidi Amiri had sued the respondent, Said Ngapwela, in the Primary Court of Temeke in Temeke District. The B suit was dismissed by the Primary Court and so the appellant appealed to the District Court of Temeke where the appeal was also dismissed. He is now appealing to this court. The case involves rival claims to a piece of land. C

Mr. Marando, learned counsel for the appellant cited the Magistrates' Courts (Primary Courts) Judgment of Court) Rules, 1987 contained in GN 2/88 and submitted that the presiding magistrate in the Primary Court had summed up to the assessors and the said assessors did not sign the judgment of the court as required by rule 4(1) of the said D Rules. He submitted therefore that the trial was a nullity and urged the court to order a new trial.

These two points were raised on appeal to the District Court of Temeke but the learned District Magistrate who heard the appeal dismissed them. As regards the point relating to summing up, this is how the first appellate court dealt with it: E

Having made a sober sorting through the contents of the so called summing up to assessors which the trial Magistrate titled them "Hukumu" which means judgment, I have F come to the view that the portion is not really summing up to asessessors but it is actually the judgment itself because it contains the summary of the evidence of both sides of the case, the issues of the case and the reasoning of the magistrate. In that form I take the same to be the judgment of the court because the gist in it is what the court has found G in the case.

I have examined the original record of proceedings in the Primary Court and found that what the presiding magistrate titled Hukumu comes immediately after the last defence witness, one Zaina Mlola. The order of the court appear in immediately before H Hukumu reads:

Amri: Shauri hadi tarehe 21/12/90 kwa kwenda kukagua sehemu ya tukio gharama zitagharamiwa na wote wawili. I

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MKUDE J

It is true that the said "Hukumu" contains the summary of the evidence of both sides A of the case, the issues of the case and the reasoning of the magistrate but it cannot be said that the magistrate had intended this to be the judgment of the court. Reading through it one gets the impression quite clearly that it was intended to be a summing up to the assessors. He starts with a summary of the facts and the case for the plaintiff, B then the case for the defendant, after which he frames the issues for determination. Then the next paragraph reads:

C Kwa hiyo waheshimiwa Wazee wa Baraza tuangalie matukio yaliyothibitishwa na kukanushwa tukianzia na tukio la kwanza kuwa (l) Je Kiwanja anachodai mdai ni halali kukidai? Kwa kweli ushahidi uliotolewa na mdai ni kuwa Kiwanja hicho aliuziwa 1985 ... D

This shows that he was addressing the assessors after hearing the evidence of both sides and visiting the land in dispute. In fact this point is put beyond doubt in the last two sentences in which he says:

E Kwa hiyo waheshimiwa wazee wa baraza nafikiri matukio mmeyaelewa jinsi yalivyothibitishwa na kukanushwa. Kwa hiyo ni juu yenu kunipa maoni yenu kama mdai amethibitisha dai lake. F

After this follows "Maoni ya Washauri" under which there is the opinion of the first assessor, Rashidi Abdara Lamani followed by the opinion of the second assessor, Salum. Below the opinion of each assessor there is the signature of the assessor concerned. Then follows the following: G

Hakimu: Kutokana na matukio jinsi yalivyothibitishwa na kukanushwa naungana na washauri wangu kuwa mdai ameshindwa kumleta shahidi aliyemuuzia kuja kuthibitisha H kuwa kweli mali aliyouza ni halali kwake na vile vile hata mashahidi walioshuhudia mauziano hayo pia ameshindwa kuwaleta ....

Mahakama: Kwa kauli moja mahakama inaamua kuwa mdai ameshindwa kuthibitisha I dai lake mdaiwa ameshinda. Mdai amepoteza gharama za shauri.

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MKUDE J

Below this there is only the signature of the magistrate. Thus the assessors have their A signatures appearing only once each, below their respective opinions.

Nowhere in the record of proceedings can you find the two signatures and that of the magistrate together.

In dealing with the question whether the two assessors had jointly signed the judgment B of the court or not the learned District Magistrate who sat on appeal said:

With reference to the lower court's records, I should not, at this juncture, hesitate to dismiss the appellant's second ground of appeal that the trial court assessors did not C sign the judgment, as the records show clearly that there are signatures of the two assessors namely Rashid and Salum, which they had signed after their respective opinions. D

In my considered view those signatures are enough to serve the purpose intended by the rules cited by the learned, Advocate for the appellant.

With due respect to the learned District Magistrate, those signatures are not enough E for the purpose intended by the rules. Rule 3 provides as follows:

3 (1) Where in any proceedings the court has heard all the evidence or matters pertaining to the issue to be determined by the court, the magistrate shall proceed to consult with F the assessors present, with the view of reaching a decision of the court.

G (2) If all the members of the court agree on one decision, the magistrate shall proceed to record the decision or judgment of the court which shall be signed by all the members.

(3) For the avoidance of doubt a magistrate shall not, in lieu of or in addition to, the consultations referred to in sub rule (1) of this Rule, be entitled to sum up to the other H members of the court. (Emphasis supplied)

These are mandatory provisions intended to emphasize the role of assessors in Primary Courts as members of the court and not just simple assessors assisting the court. The I magistrate has to consult

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the assessors and if there is a unanimous decision his duty is to reduce the decision to A writing and call upon the assessors to sign it with him so that it then becomes the decision or judgment of the court. Where there is a dissent then the majority must sign the majority judgment, which becomes the judgment of the court, and the magistrate must record the dissent and have it signed by the dissenting member. In the present B case as all the members of the court had agreed on dismissing the suit then they ought to have signed one decision jointly.

In the final result I agree with Mr. Marando, learned counsel for the appellant, that the C trial magistrate erred when he purported to sum up to the assessors in what he called "Hukumu" and also erred when he failed to record the unanimous decision of the court and call upon the assessors to sign it with him, for these reasons I declare the trial a nullity and order that the case be tried de novo before another magistrate sitting with D different assessors. Costs will abide the outcome of the said new trial.

Trial nullity.

1992 TLR p346

E

[zRPz]ANDREA CHILENA v KENI MASAKA 1992 TLR 346 (HC)

Court High Court of Tanzania - Dodoma

Judge Mwalusanya J

26 November, 1992 F

Flynote

Customary law - Brideprice - Refund of - Principles.

-Headnote

The appellant's marriage with his wife lasted for three years. Then the parties divorced. G By then they had no child of the marriage. The appellant sought to recover 9 head of cattle and Shs. 3000/= he had paid as brideprice. The respondent resisted refunding the bride price on the ground that the appellant was responsible for the breakdown of the marriage.

The appellate court considered the principles governing refund of brideprice. H

Held: Under para 52A and B of the Declaration of Customary Law (Law of Persons) G.N. 279 of 1963 if there are many children to the marriage and the marriage has I subsisted for a long time, no brideprice is refundable;

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MWALUSANYA J

(ii) even though the appellant was the guilty party responsible for the breakdown A of the marriage, since there were no children to the marriage and the marriage lasted for a very short period (about three years) the appellant should have a partial refund of brideprice.

Case Information

Appeal allowed in part. B

Mr. Mpoki for the appellant

[zJDz]Judgment

Mwalusanya, J: The appellant Andrea s/o Chilewa lost in the suit he filed at the Dodoma Urban Primary Court in which he claimed a refund of brideprice of 9 head C of cattle and shs.3,000/= from the respondent Keni s/o Masaka. The trial court held that the appellant had paid 6 head of cattle and shs. 3,000/= only as brideprice on the ground that the appellant was the guilty party responsible for the break down of the marriage. Appellant made his first appeal to Dodoma District Court and he again lost D and hence this second appeal. Appellant was represented at the hearing of the appeal by an advocate Mr. Mpoki.

The first point taken by the appellant's counsel Mr. Mpoki was that the first appellate court misdirect itself on not considering the likelihood of bias by the same magistrate E trying the case which he had earlier on tried and determined against the appellant. What happened was that in the divorce suit, the trial magistrate had granted divorce and then proceeded to order in the same case file that appellant was not entitled to a refund of F brideprice because he was the guilty party responsible for the breakdown of marriage. On appeal the learned District Magistrate quashed that part of the proceedings which denied the appellant the right to refund of brideprice on the ground that the question of refund of brideprice has to be adjudicated in a separate suit and not in the divorce suit. G And so a retrial was ordered for the question of refund of brideprice.

In my judgment I find that the question of bias could not arise because the irregularity that was committed in the first place was simply because the trial magistrate had combined two suits in one - the divorce suit and the suit for the refund of brideprice. H All what the learned District Magistrate had ordered was that they should be two separate suits. There was nothing wrong for the trial magistrate and his assessors to give the same views that they had given in the first suit. In fact the trial court would have been guilty of inconsistency if they had come to a different conclusion in the second suit for I the same set of facts. On my part I view them as

principled adjudicators who do not decide a case according to the whims of the hour. A

Now what amount of brideprice had been paid by the appellant? The appellant had two witnesses namely Zubeti s/o Ismail (PW.2), and Charles s/o Chilewa (PW.3) who supported him that he had paid 9 heads of cattle and cash shs. 3,000/=. On the other B hand respondent had two witnesses to support him namely the ten cell leader Paulo s/o Chipagala (DW.2) and the appellant's ex-wife Mwajuma d/o Masaka (DW.3). Those said appellant had paid only six heads of cattle and cash shs. 3,000/=. It will be seen that the matter depended on the assessment of the

credibility of the witnesses. As the C trial court had the opportunity to assess the demeanour of the witnesses in the witness-box, it will be wrong for this court to disturb the finding of the trial court. Like the District Court I find that only six heads of cattle and cash shs. 3,000/= had been paid as brideprice. D

The final question is, is the appellant entitled to a refund of the whole or any part of the brideprice? Counsel for the appellant Mr. Mpoki has submitted that both courts below were wrong to think that the sole consideration for ordering a refund or not, was the question as to who was the guilty party responsible for the break-down of marriage. E He said that the question of whether to order a refund or not was discretionary, among other matters to consider are the presence of children in the marriage and the duration of the marriage. On my part I find that Mr. Mpoki is right and the case of Murange s/o Mahende v Maricha s/o Malosi [1981] T.L.R. 295 supports him. F

Under para 52A and B of the Declaration of Customary Law (Law of Persons) G.N. 279/1963, if there are any children to the marriage and the marriage has subsited for a long time, no brideprice is refundable. Then comes para 54 which provides: G

> It is the court's discretion to vary the provisions contained in para 52A and B and to assess the amount of brideprice which should be returned, and the degree of guilt is the determining factor. H

In the case at hand, there were no children to the marriage, and the marriage lasted for a very short period, about three years only. That being the case, even though the appellant was the guilty party responsible for the break down of marriage, at least the appellant I should have got a partial refund of brideprice. Both courts below

did not exercise their discretion judicially. In the circumstances of this case at least the A appellant should have been refunded two heads of cattle only. I so hold.

In the event, the appeal is partly allowed. I order that the appellant be refunded two head of cattle only. Each party to bear its own costs. B

Order accordingly.

1992 TLR p349

C

[zRPz]SALUM ABDALLAH KIHONYILE v REPUBLIC 1992 TLR 349 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Makame JJA, Ramadhani JJA, Mfalila JJA

D

27 November 1992

Flynote

Criminal Law - Murder - Provocation - Provocative incidents taken together - Whether defence of provocation available. E

Criminal law - Murder - Self defence - Spearing deceased from the back while pursuing him - Whether defence of self defence available.

-Headnote

The appellant who was convicted of murder appealed against both conviction and F sentence of death. In his appeal he argued that the learned trial judge did not consider a number of provocative incidents which, when taken together availed him of the defence of provocation. The appellant also argued that although he speared the deceased from behind while pursuing him the defence of self defence should have been accepted by G the Court.

Held: (i) Having in mind all the background incidents, the continuous almost deliberate trespassing of their farms by the Masai cattle, the aggressive approach by the Masai and H the subsequent attack on the appellant which resulted in his being injured on the forehead, convince us that at the time the appellant speared the deceased, he was still affected by this provocation;

(ii) when the appellant speared the deceased from behind while pursuing him he was not then defending himself against anything as the deceased was no longer aggressive. I

1992 TLR p350

Case Information

Murder reduced to manslaughter. A

Shayo, for the appellant

[zJDz]Judgment

Mfalila, Makame and Ramadhani, JJ.A.: The appellant Salum Abdallah Kihonyile B was charged with and convicted of murder. Upon being so convicted, he was sentenced to death. This appeal before us is against that conviction and sentence.

According to the version given by the prosecution at the trial, the killing of the deceased Hassan Maranda, followed an incident in which the appellant had cut the muscles of the C hind legs of a Masais cow. This was on 14/11/88. The detailed story was told by one of the Masai herdboys Njai Kisongela (P.W.4). At the time he was giving evidence, this boy was estimated to be about 12 years old. The learned trial judge allowed him to give evidence but not on oath because he found that the boy did not understand the nature D of an oath. This boy told the trial court that on the day in question he and his colleagues were herding cattle when the appellant approached their herd and cut the hind legs of one of the cows. The said cow was immobilized. The boy ran home to tell his parents and other adult Masai, that the appellant whom he knew had immobilized one of the E cows by cutting the muscles of its hind legs. On hearing this, the elders asked the boy Njai Kisongela to lead them to the scene where the cow had been cut and was lying. The boy took them there and on seeing the striken animal, one of these adults, namely F the deceased asked him to take him to the man who had done this to one of their cows. Despite being advised by his colleagues that he should not do that until it was established whether or not the culprit was just a thief, the deceased insisted on meeting the man immediately. The boy Njai led him to the appellant's hut where they found the G appellant lying down outside. According to this boy, when the appellant saw them he started shaking in fear. The deceased asked the appellant to accompany them to the place where the cow which he had cut was lying. The appellant responded by saying that he did not cut any cow, but he added

that he would ask his colleague who was H inside the hut to see whether it was he who had cut the cow. He ran inside, the deceased tried to stop him without success. When the appellant came out, he was armed with a spear and threatened to teach the two a severe lesson. The two then started running with the appellant in hot persuit of the deceased. When after some I distance (65 metres according to the estimated distance), the deceased tripped and fell, the appellant

stabbed him with a spear at the back. The blade went so deep that only the handle A came out, the steel blade remained in the body until it was removed during the post mortem examination. After stabbing the deceased, the appellant turned on the boy Njai, but he abandoned the chase when he saw people coming.

At the trial, the appellant denied cutting the cow as alleged, but admitted spearing the B decased to death, saying that he did so after being provoked by the deceased and his colleagues. According to his version, the background to the killing of the deceased was as follows: Prior to this incident, the Masai cattle had been a menace to farms in the area, and consequently he decided of late to guard his shamba. On the day in C question at about 5 p.m. he saw a group of cattle moving towards his shamba. He went out of the hut to go and chase away the cattle from his shamba. As he was doing this, he saw four Masais emerge from the grass where the cattle had originally come from. The D Masai started driving the cattle back to his shamba. They confronted him and asked him why he was driving their cattle away from the grass. When he asked the Masai where the grass was, they started assaulting him. The deceased in particular took out his hunting knife and a stick. He advanced on him and attempted to cut him with it. In the course of this confrontation, the deceased cut him on the forehead. At this stage, the E appellant ran into his hut, followed by the deceased. He collected his spear and confronted the deceased. While they were in this position, the appellant said, he stabbed the deceased with the spear. After being stabbed the deceased retreated, but another F Masai followed him. Fortunately he managed to get out of the hut and ran very fast to the local cell leader for safety.

After being addressed and directed by the learned trial judge, all the three assessors were of the opinion that throughout this incident, the appellant was acting in self-defence G against a group of Masai who had attacked him. In the circumstances, they advised that he should be acquitted.

However, the learned trial judge differed and held that both the defences of provocation and self defence were not available to the appellant. The learned judge had very high H regard for the boy Njai (P.W.4) as a witness who he said, told nothing but the truth, and that on the version as told by P.W.4, there was no room for provocation or self defence. He rejected as lies the appellant's version of the confrontation between him and the Masai during which he was stabbed on his forehead. He gave a number of I reasons. First, the learned judge said that if the appellant and the deceased

were facing each other as described by the appellant, it would not have been possible A to stab the deceased on the part of the body shown in the report. Secondly, he said that the deceased's knife was found in its sheath thereby eliminating the possibility that the deceased used or attempted to use it on the appellant. Thirdly, he said that the injury on the appellant's forehead was so superficial that it could only have been self inflicted to B match the story he prepared.

At the hearing of this appeal, Mr. Shayo learned counsel who advocated for the appellant, stressed the availability to the appellant of the twin defences of provocation C and self defence. He argued that the fact that everybody agrees that at the time the appellant was shaking with fear, indicates the existence of an intimidating atmosphere and that since on the evidence there was a fight, the appellant must have been acting in self-defence.

On our part, we think with respect that the learned judge's great trust on the D credibility of the boy witness (P.W.4), blinded him to other equally relevant and important considerations. Take the question of the appellant cutting the legs of one of the cows in the Masai herd. The appellant denied doing anything of the sort, but we are satisfied that his denial cannot be true. The boy P.W.4 saw him do it and the afflicted E cow was physically seen and later slaughtered. But this incident should not have been so lightly dismissed by the learned judge. It was a pointer or indicator that all was not well between the "Waswahili" agriculturists and their pastoral Masai neighbours. It cannot be F possible that a man in his right senses, as we think the appellant is, could just get up and start cutting the limbs of his neighbour's animals. There must be something or some occurence which provoked him to act that way. In this case we are told, and this was not seriously challenged, that Masai cattle were a menace to the cultivated and planted G farms in the area. On the day in question, the appellant must have seen these cows arriving to invade his shamba and reacted accordingly. So this was the first provocation. Then he was confronted by the deceased whose approach was far from friendly. This is borne out by the fact that the deceased insisted on meeting the man who had cut the H legs of their cow despite being advised to the contrary, to wait until the position was thoroughly established. On arrival at the appellant's hut, and on seeing them, the appellant was visibly trembling with fear. What then made him tremble in fear? It must have been the menacing approach by the deceased, indicating that he was armed and I ready to use his weapon. We think this explains

the need felt by the appellant to go into his hut to similarly arm himself for a possible A confrontation. In this kind of atmosphere, saturated with aggressiveness on both sides, where one party ends up dead and the other with an injury described by D. Sgt. Saidi Rashidi (P.W.3) as one which must have been occasioned by a sharp weapon, we do not think it was correct and safe to dismiss it as self inflicted to match the prepared B story. At one time during the confrontation, the appellant could have acted in self defence but this cannot apply to the final stabbing with a spear because we are satisfied from the position and nature of the injury that the appellant speared the deceased from the back while pursuing him. He was not then defending himself against anything. The C deceased was no longer aggressive. But having in mind all the background incidents, the continuous almost deliberate trespassing of their farms by the Masai

cattle, the aggressive approach by the Masai and the subsequent attack on the appellant which resulted in his being injured on the forehead, convince us that at the time the appellant D speared the deceased, he was still affected by this provocation which is sufficient to reduce the offence to the lesser one of manslaughter. The gentlemen assessors at the trial, were of the opinion that the appellant acted in self defence, but for the reasons we E have given, this defence was not available to the appellant at the time he speared the deceased in hot pursuit. But as indicated he was still under the influence of provocation.

For those reasons we set aside the conviction for murder and the sentence of death. Instead we substitute a conviction for manslaughter and taking all the relevant factors F into account, we sentence the appellant to 10 years imprisonment effective from the 25th April, 1989 the date he was convicted and sentenced in the High Court.

G Order accordingly.

1992 TLR p354

A

[zRPz]JOSEPH HUGO LIGANGA v REPUBLIC 1992 TLR 354 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Makame JJA, Ramadhani JJA, Mfalila JJA

27 November, 1992

Flynote

Criminal law - Murder - Provocation - Stopping appellant from taking rice and throwing B an axe at him - Whether defence of provocation available.

Criminal law - Murder - Self defence - Whether available where deceased not armed. C

Headnote

The appellant was convicted of murder and sentenced to suffer death. He appealed challenging both the conviction and sentence. He argued that the defences of provocation and self-defence were available to him. The appellant told the Court that D when the deceased told him to stop taking rice and threw an axe at him that provoked him. He further argued that the throwing of the axe at him forced him to defend himself.

Held: (i) The version which the appellant gave in his evidence at the trial would give E rise to a defence of self defence and provocation. But since the deceased was no longer armed at the time the appellant lashed her head there was nothing against which the appellant was defending himself;

F (ii) as to provocation, merely to tell the appellant to desist from taking the rice and even throwing the axe would not have deprived the appellant the power of self control particularly when he himself says that he had in the past ignored the deceased's previous irritations because he had to act responsibly as the male head of the household. G

Case Information

Appeal dismissed.

[zJDz]Judgment

Mfalila, Makame and Ramadhani, JJ.A.: The appellant Joseph Hugo Liganga was H convicted of murder and sentenced to death by the High Court sitting at Morogoro (Lugakingira, J.). The High Court found the allegation that he had with malice aforethought caused the death of his sister-in-law Konsolata Likupila proved beyond reasonable doubt. He lodged this appeal against both conviction and sentence. I

1992 TLR p355

MAKAME JJA, RAMADHANI JJA, MFALILA JJA

The only eye witness to the killing who gave evidence at the trial was the appellant A himself. The only other person who was in the room at the time, the young girl Salima Selemani could not be found to give evidence. On 12/8/88 at 11 p.m. Nikodemu Liganga (P.W.1) received particularly bad news of the death of the wife of his younger brother. This witness told the trial court that at that hour he was visited by the late B Rashid Katepa who was accompanied by the appellant and the young girl Salima. They informed him of the killing of his sister-in-law Konsolata. On receipt of this information, he proceeded to the scene where he found a particularly gruesome sight. In Konsolata's C room, he found a lot of blood splattered everywhere. They saw the deceased lying on the bed, she had a cut wound on the throat extending from below the left ear to below the right ear. She had another wound on the head which appeared to have been inflicted by a heavy instrument like a hammer. The gruesome sight was also witnessed by a neighbour Iddi Mbonde (P.W.2) who arrived at the scene in response to an alarm as D well as the village chairman Selemani Rajabu (P.W.3) who arrived at the scene after being sent for. The appellant was arrested, tied with ropes and placed in the custody of the chairman who also took under his possession the suspected murder weapons namely, the axe and the panga. When later police arrived at the scene, he handed to E them both the appellant and the murder weapons.

At his trial, the appellant did not dispute the allegation that he killed his sister in law Konsolata. He freely admitted killing the deceased to the point of describing in detail F how he had killed the unfortunate woman. Both from his evidence in court, and his extra judicial statement, it can be gathered that he claimed that he killed the deceased either in self defence or on grave provocation or both. He explained that on the day in question, he could not eat his dinner properly because of a bad stomach. But later in the night G about 9 p.m. when the two women, the deceased and Salima had gone to sleep, he felt hungry and looked for food in the house. He found none as the whole amount had been consumed. He therefore decided to do the cooking, but the rice was kept in the deceased's room. He went into the deceased's room to take the rice. As he prepared H to take the rice from under the deceased's bed, the deceased who had been asleep woke up and ordered him to stop. The appellant said he ignored her and continued to take the rice. But as he was doing so, he suddenly heard an axe strike the wall behind him. This he said irritated him, and so he picked up the axe and struck back at her head. I After striking this blow, the axe slipped from his grip and

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MAKAME JJA, RAMADHANI JJA, MFALILA JJA

fell to the floor. But at hand was a panga which he had taken with him into the A deceased's room. He picked this panga and gave her another blow with it. However in his extra judicial statement, the appellant suggested that the deceased only threatened him with the axe if he continued to ignore her order to stop taking the rice. As she said B this while pointing the axe at him, he snatched it and struck her with it. When he lost grip and it fell on the floor, he produced a panga which was nearby and slashed her throat with it.

On this evidence the learned trial judge directed the assessors on two defence: Self defence and provocation. Although the assessors did not say so in so many words, C perhaps on account of the manner in which they were directed, they seem to have rejected these defences and advised that the appellant was guilty of murder. The learned trial judge accepted this advice and in his judgment gave detailed reasons why the two defences were not available to the appellant and convicted him. D

In this appeal, the appellant raised only one issue namely that "the learned trial judge erred in law and evidence in not giving the necessary weight to several incidences prior to the death of the deceased such as accusations of sexual demands, caning of the appellant by the deceased and the refusal by the deceased to allow appellant take E some rice for cooking on the material date triggering the appellant to kill the deceased. Such incidents if properly considered would have reduced the conviction to a lesser offence of manslaughter."

Reading through the judgment of the trial court, it becomes abundantly clear that the F learned judge treated the two defences of self defence and provocation in great detail. In our view it is not easy to fault the learned judge's reasoning. When he went in to collect the rice from the deceased's room, the appellant armed himself with a panga. G Indeed the learned judge thought it more likely than not that the appellant was also armed with the axe for he could not see how the axe got into the deceased's room, given the manner in which it was ordinarily kept in his room. If he was going merely to collect rice for cooking, why arm himself so heavily? The appellant explained that it was H his habit to walk about with his panga wherever he went "even in the toilet". We ask ourselves, why? of course we do not know what kind of toilet facilities he had. But would this necessitate his walking into his sister-in-law's room at night armed with the panga? The learned trial judge rejected this and found that the appellant went into the I deceased's room with criminal intentions. We agree. The version which the appellant

gave in his evidence at the trial would give rise to a defence of self defence and A provocation. But since the deceased was no longer armed at the time the appellant bashed her head, we agree with the learned judge that there was nothing against which the appellant was defending himself. He was in his own words just revenging. As to provocation, we agree with the trial court that merely to tell the appellant to desist from B taking the rice and even throwing the axe, would not have deprived the appellant the power of self control particularly when he himself says that he had in the past ignored the deceased's previous irritations because he had to act responsibly as the male head of the household. The act of pointing an axe at the appellant as explained in the extra C judicial statement could not amount to provocation capable of creating the kind of reaction the appellant unleashed on the deceased. This is the only explanation why

the appellant chose to go into the deceased's room armed to the teeth. The manner and D brutality with which he killed the deceased is proof that the appellant on that particular day, had decided to provide or execute the last solution to his long standing problems with the deceased. He bashed the deceased's head and in his own words finished the business by cutting her throat from end to end. Such a killing cannot be anything but murder. E

For those reasons we are satisfied that this appeal has no merit and we dismiss it in its entirety.

F Appeal dismissed.

1992 TLR p357

[zRPz]LUBAGA SENGA v REPUBLIC 1992 TLR 357 (HC)

Court High Court of Tanzania - Tabora

Judge Katiti J

G

4 December, 1992

Flynote

Criminal Practice and Procedure - Sentencing - Mitigating factors - Plea of guilty, first offender, showing deep sorrow, promise to compensate. H

-Headnote

Lubaga Senga the appellant, was charged under section 269(c) of the Penal Code, Cap 16. He was condemned to 5 years' imprisonment on his own plea of guilty. He I appealed against the sentence contending that it was excessive.

1992 TLR p358

KATITI J

The Appellant was a first offender and in mitigation he showed deep sorrow for the A offence, apart from promising to refund the complainant the loss caused to him by the appellant's wrong acts. On appeal.

Held: (i) Every sentencing process cannot and should not, unless a statutory minimum B sentence is being administered, avoid individualization of the offence, and the circumstances of the offender, otherwise the whole exercise becomes mechanical;

(ii) the appellant was, in the circumstances, entitled to more lenient treatment than he was accorded. C

Case Information

Appeal allowed.

[zJDz]Judgment

Katiti, J.: On the 29/1/1990, one Katiba Umege the complainant, was expecting a consignment of beer from Arusha, by use of Scania lorry TZ 51559. When it finally D arrived, the count of crates of beer revealed that two crates of beer, worth Shs. 13,000/= had been consumed to finish, the empty bottles bearing witness to the said same consumption. Guarding the said beer crates from Arusha was Lubaga Senga, the E appellant herein. This Lubaga Senga, admitted to have

drank some of the same to quench his thirst, and to have charitably dished some to some passengers.
The appellant was therefore charged, under section 269 (c) of the Penal Code Cap. 16. He pleaded unequivocally guilty, and hence the conviction on his own plea of guilty. He F was sentenced to five years imprisonment, subject to confirmation. The appellant is now appealing against sentence, contending that the sentence was excessive.
The learned Senior State Attorney Mr. Kaduri, appearing for the Republic, did concede G that considering the circumstances of this case, the sentence of five years imprisonment, was on the high side. It has to be recalled, that the offence carries, the maximum sentence of ten years imprisonment, and that if five years imprisonment is imposed the hue and cry against the same, would expectedly be less. But every H sentencing process cannot and should not, unless a statutory minimum sentence is being administered avoid individualization of the offence, and the circumstances of the offender, otherwise the whole exercise, becomes mechanical. In this case, the appellant admitted guilt, a factor speaking mitigatingly in favour of him. He was a first offender, a I factor eloquently praying for lenience in favour of the appellant, and to still add, the appellant

contritely begging pardon, and promising to pay, could not have left mercy without a A smile. The appellant said in mitigation:

> I only pray for pardon, some people fooled me in dishing out the beer. I promise to pay back the value of the beer, I stole i.e. Shs. 13,000/=. I will raise it. B

If the sense of mercy, can still stand smile - less, as a statue of granite, in the face of such a plea, I do not know, under what circumstances, would mercy be moved in favour of the pleader. I am of the considered view, that the appellant was in the C circumstances entitled to more lenient treatment, than he was accorded. In the circumstances, I am allowing his appeal, and making such order as will result in his immediate release, unless, he is otherwise legaly held. D
Appeal allowed.

E
[zRPz]MARTHA DANIEL v PETER THOMAS NKO 1992 TLR 359 (HC)

Court High Court of Tanzania - Arusha
Judge Mroso J

4th December, 1992 F
Flynote
Civil Practice and Procedure - Appeals - Application for extension of time to institute appeal - Appeal filed within time but in a wrong court - Ignorance of rules by a lay person - Whether sufficient reason - Section 25 Magistrates' Courts Act, 1984. G

-Headnote

The applicant lost an appeal in the District Court. Instead of filing her petition of appeal in the District Court the applicant, filed the petition of appeal directly in the High Court in contravention of the procedure stipulated in section 25(3) of the Magistrates' Courts H Act, 1984. The High Court struck out the appeal which was not properly before it. When the applicant wanted to file the appeal according to the laid down procedure it was discovered that time for so filing had ended. It was, thus, necessary to apply for extension of time to file the appeal. One of the reasons advanced was that the applicant I was a lay person who did not know the rules.

1992 TLR p360

MROSO J

Held: A plea by a lay person that he be allowed to file an appeal out of time in an A appropriate court an appeal which was struck out or is voluntarily withdrawn from the High Court because it had been wrongly filed there, but timely, constitutes a sufficient reason.

Case Information

Application allowed. B

Musei, for the applicant.

Umbulla, for the respondent.

Judgment

Mroso, J.: The applicant was the losing party in an appeal from the Primary Court of C Maji ya Chai to the District Court of Arusha. She filed (PC) Civil Appeal No. 47 of 1985 to this court. But in doing so she contravened the procedure stipulated in section 25(3) of the Magistrates Courts Act, 1984 by filing the petition of appeal directly in the High Court instead of filing it in the District Court of Arusha. Because of that this D court was moved by Mr. Umbulla, learned advocate for the respondent, to strike out the appeal which was not properly before it. Following that order, the applicant through her advocate, Mr. Musei, wishes to file the appeal afresh, in the correct procedure. But E since the time for appeal has long run out, she has filed this application for leave to appeal out of time. In the Chamber Application Mr. Musei has cited Section 25(l)(b) of the Magistrates' Courts Act, 1984 and Section 4(l) of the Law of Limitation Act. The application is supported by the affidavit of the applicant. F

The main reasons given in the applicant's affidavit for the enlargement of time are that she is an illiterate woman who was ignorant of the provisions of section 25(3) of the Magistrates' Courts Act, 1984 and that the High Court registry staff did not inform her at the time she presented her petition of appeal that it ought to have been presented in G the District Court from the judgment of which the appeal was preferred.

During the hearing of the application Mr. Musei elaborated that even lawyers had been overlooking the requirements of section 25(3) of the Magistrates' Courts Act, 1984 H and, therefore, that this court should show special consideration for a lay and illiterate person like the applicant. Mr. Musei further submitted that the applicants appeal to this Court which was struck out for not being properly before the court had in fact been filed in time and that the applicant's intended appeal is meritorious. I

Mr. Umbulla for the respondent vehemently resisted the application and asked the A court to dismiss it. He submitted that there have not been shown special and adequate grounds for the delay in filing the appeal and that ignorance of the law is not an excuse. In support of that submission, he cited the case of Rozendo Ayres Ribeiro v Olivia Daritta Siqueira E. Fachao and Lilia Ozlinda Pia Daritta Siqueira [1934] Vol. I B EACA 1 where it was held that if an appeal is not filed in time, special circumstances have to be shown for extension of time to appeal. Examples of special circumstances were given as where there has been any misleading through any conduct of the other party or where some mistake had been made in the office itself, and the party was C misled by an officer of the Court or where some sudden accident which could not have been foreseen accounted for the delay. But a mere misunderstanding of the provisions of appeal rules will not amount to special circumstances. D

Mr. Umbulla also cited a Ruling of this Court in Miscellaneous Civil Application No. 97 of 1992 Martin Paul v Gerald Valery: unreported, in which it was held that filing an appeal in the wrong court is not a sufficient ground for extension of time to appeal. It was further argued by Mr. Umbulla citing the Court of Appeal of Tanzania Miscellaneous E Civil Application No. 20 of 1988 - Maulidi Hussein v Abdallah Juma as authority, that mistake of counsel or applicant or even prospects of the intended appeal succeeding is not a sufficient ground for granting leave to appeal out of time.

In response to the arguments and the authorities cited by Mr. Umbulla, Mr. Musei said F that those authorities were not relevant to the application under consideration. He said the applicant who was not represented by counsel when she filed her appeal, had in fact acted with due diligence in filing it in time, albeit in the wrong court. G

An appeal to the High Court from the decision or order of the District Court in proceedings originating from the Primary Court has to be filed within 30 days of such decision or order, according to section 25(l) of the Magistrates' Courts Act, 1984. There is a proviso however, that the High Court may extend the time for filing such appeal. Even H so, there must be sufficient reason to make the High Court exercise its discretion to extend the time, for the High Court in exercising its discretion it must act judicially. To act judicially implies acting for good or sufficient reason.

The applicant who admittedly is a lay person, and it is claimed she is illiterate, acted in I time in preparing her petition of appeal to

the High Court against a decision of the District Court of Arusha sitting as a first A appellate Court. The question is whether her ignorance of the procedure as contained in section 25(3) of the Magistrates' Courts Act, 1984 can amount to sufficient reason to give her enlarged time to refile the appeal, this time in the correct court. B

I have had the advantage of reading through the cases which were cited to me by Mr. Umbulla.

In the Ribeiro v Siqueira case Counsel for the applicant for extension of time under Rule 8 of the Eastern Africa Court of Appeal Rules, 1925 had claimed that a misinterpretation C of the judgment of the Supreme Court of Kenya had been the cause for failure to appeal in time against that judgment. The Court of Appeal said in that connection:

D Now before the applicant can succeed he must show that there have been special grounds for his delay in presenting his appeal, and here we would observe. That it is settled law that a mistake made by him or by his counsel as to the effect of the judgment could not per se constitute a good ground for granting his application. E

Citing the case of in Re Coles and Ravenshear [1907] 1 KB 8 where Farewell, L.J. said:

F A mere slip or blunder on the part of the litigant's legal adviser cannot, in my view, entitle him to anything at all the Court of Appeal for Eastern Africa refused to grant leave.

In CAT Civil Application No. 20 of 1988 - Maulidi Hussein v Abdallah Juma case G (unreported), it was held that negligence or want of diligence by counsel for a party is not a sufficient reason for granting leave to appeal out of time. A similar view was held in CAT Civil Application No. 13 of 1987 - Institute of Finance Management v Simon Manyaki (also unreported). However, in both the Simon Manyaki case and in the case H of Shah Hemras Bharmal and Brothers v Santosh Kumari w/o J.N. Bhola [1961] E.A. 679 a significant departure appears to have been made from the Ribeiro v Sequeira case in that mistakes of legal advisers, within limits, may amount to sufficient reason for extending time to appeal. In the Simon Manyaki case Kisanga, J.A. said: I

1992 TLR p363

MROSO J

A The decision in each case must depend on the facts and circumstances of the individual case ... The point to stress here is that counsel's mistake may amount to sufficient reason only where the mistake involves a minor or slight lapse, but not where it involves a lapse of a fundamental nature.

That was also the view which was expressed by the Court of Appeal of Tanzania in the B case of Kighoma Alli Malima v Abas Yusufu Mwingamno, Civil Application No. 5 of 1987 (also unreported). The Ruling of this court in the Martin Paul v Gerald Vallery was based solely on the EACA decision in Ribeiro v Siqueira case. C

Apart from the Ribeira v Siqueira and Martin Paul v General Vallery cases which said that mistakes by applicants (as distinct from those made by their counsel) cannot be considered (whatever they may be?) as providing sufficient reason for extending time for appeal, the other cases to which I have referred centred on mistakes or negligence or D lack of diligence on the part of counsel for parties. I think where a mistake relates to a procedure as set out by law but otherwise there is no negligence or want of diligence, a distinction should be drawn between a lawyer and a lay person.

A lawyer is trained on how and where to look for the law. It is easy for a court to E reject his plea that he did not realise that a certain legal procedure for filing an appeal existed. But a lay person who has been acting with due diligence may easily be misled by a wrong practice. For example, it is a fact that until I put a stop to it and issued firm directions, it had been the practice

in this court for a long time for appeals in proceedings F originating from the Primary Court to be filed directly in the High Court, in complete oblivion of the provisions of section 2 5(3) of the Magistrates' Courts Act, 1984. There are scores of decisions of this court in appeals which were filed in contravention of section 25(3) referred to, and which remain "valid" because no one as yet has appealed G to the Court of Appeal to have them overturned on that ground. For my part, therefore, I shall be inclined to accept as a sufficient reason a plea by a lay person that he be allowed to file out of time in the appropriate court an appeal which has been struck out or is voluntarily withdrawn from the High Court, because it had been wrongly filed there, but H timeously.

The last point I have to consider in this application is whether I should allow it, Mr. Musei said the intended appeal stands a good chance of success. Mr. Umbulla disputes that I argument and said that in fact it stands no such chance.

1992 TLR p364

MROSO J

In the case of Mugo and Another v Wanjiru and Another [1970] E.A. 481, leave to A appeal out of time was sought on the ground that proceedings in the Supreme Court of Kenya were conducted in breach of the principles of natural justice, suggesting thereby that the intended appeal had a high likelihood of succeeding. The Court said: B

> I would agree to this extent, that I do not think the fact that an appeal appears likely to succeed can of itself amount to a "sufficient reason". Normally, I think, the sufficient reason must relate to the inability to take the particular step in time, but I am not prepared to say that C no other consideration may be invoked.

The court granted the extension of time sought because there had been a distinct possibility that the proceedings in the Supreme Court had been conducted in breach of D principles of natural justice, in that the parties had not been given opportunity to be heard.

In the application before me, although, it is stated in the applicant's affidavit that the appeal was "meritorious" no copy of the judgment against which the appeal is intended E was annexed to the application. So, this court has no means to verify the claim that the appeal is or is not "meritorious".

Mr. Umbulla for the respondent, however, has submitted that the respondent has been on the disputed land since 1980, after buying it. The applicant was aware of that fact and did F not take any steps to challenge the respondent's occupation until four years later, in 1984. For those reasons Mr. Umbulla prayed that the application be dismissed with costs.

As I have already said I am not in a position to know the merits of the intended appeal G but since I have found for the reasons discussed earlier that the applicant has shown sufficient cause, leave is hereby granted to the applicant to file the intended appeal out of time. The period is extended to 14th December, 1992.

H Application allowed.

1992 TLR p365

A

[zRPz]MKUBWA SAID OMAR v S.M.Z. 1992 TLR 365 (CA)

Court Court of Appeal of Tanzania - Zanzibar
Judge Nyalali CJ, Kisanga JJA, Ramadhani JJA

4 December, 1992
Flynote
Evidence - Corroboration - Evidence which needs to be corroborated cannot corroborate. B
-Headnote
The appellant, with others, were charged with and convicted of the offence of burglary and stealing. On first appeal the others were acquitted. Aggrieved, the appellant C appealed further to the Court of Appeal of Tanzania. The main argument put forward on appeal was that the first appellate court accepted the evidence of P.W.4 which required close scrutiny before it could be acted upon to uphold the conviction of the appellant. The D evidence of P.W.4 was used as corroborative evidence to that of accomplices to found the conviction of the appellant.
Held: P.W.4 was a witness whose evidence needed corroboration before it could be accepted and acted upon. Such evidence which requires corroboration could not itself E corroborate accomplice evidence.
Case Information
Appeal allowed. F
Mbwezeleni, for the appellant.
[zJDz]Judgment
Kisanga, J.A., Nyalali, C.J. and Ramadhani J.A.: The appellant and three others were jointly charged in the Regional Magistrate's Court Zanzibar with the offences of burglary and stealing contrary to sections 267(1)(a), and 248(1) respectively of the G Penal Decree. Two of them were acquitted but the appellant and one other were convicted on both counts and were each sentenced to 4 years' imprisonment on each count; the sentences to run concurrently. On first appeal the High Court (Hamid, C.J.) H upheld the conviction and sentence of the appellant but allowed the appeal of his co-appellant. The appellant is now appealing further to this Court.
The facts of the case may be summarized very briefly as follows: The complainant's house was broken into at night and a video and a radio were stolen from there. Only a few days I later the video was traced into the hands of one Haji Daudi Suleiman who

was made a co-accused at the trial; the radio was never traced. Haji's explanation was A that the video was deposited with him by the appellant to secure a loan of Shs. 20,000/= he gave to the appellant. His defence was duly supported by the evidence of Nuru Abdulla Khamis, his wife who testified for the prosecution as P.W.4. The appellant denied sending anything to Haji, his co-accused, as claimed by Haji himself and his B wife. As intimated before both courts below disbelieved the appellant's story and found him guilty of the burglary of the complainant's house and of stealing from there the video in question.

In this appeal the appellant was represented by the learned advocate Mr. H.A.S. C Mbwezeleni who raised two grounds of appeal, namely, that the video in question was not identified adequately and that the appellant's conviction was based on accomplice evidence which was not sufficiently corroborated.

We have to state at once that there is merit in both grounds of complaint. The D complainant (P.W.1) identified the video merely by pointing at it in the court room and saying that it was his and that his wife also identified it. His wife (P.W.2) slightly improved on this by stating that she identified the video because when it was stolen the thief or E thieves left behind its cover and wires or cable. No attempt was made, however, to show whether the cover which was left behind fitted this particular video. Mr. Mbwezeleni submitted that the evidence of identification so far adduced was not sufficient to distinguish the video in question from any other video. F

Indeed the investigation officer (P.W.5) testified that he recovered from the house of the accused Haji video No. 8100233, but this does not establish that this is the very video which was stolen from the complainant's house. The difficulty would have been removed if the complainant and/or his wife were able to say that their video bore this number, but G they did not. As things stand now, however, we agree with Mr. Mbwezeleni that the evidence of the investigating officer (P.W.5) as to the number found on the video seized by him is of little or no value in relation to this case. We also agree that on the evidence H before the court the video in question was not adequately identified as the one which was stolen from the burgled house of P.W.1 and P.W.2.

On the issue of corroboration, the learned Chief Justice properly directed himself by saying that the evidence of Haji Daudi Suleiman, an accomplice, required corroboration I when Haji said that the video in question was deposited with him by the appellant

as a security for a loan. Mr. Mbwezeleni submitted, rightly in our view, that the learned A Chief Justice, however, erred in finding that Haji's evidence was duly corroborated. The Chief Justice found that the evidence of Haji was duly corroborated by that of his own wife Nuru (P.W.4). He took the view that although P.W.4 was the wife of the B accomplice Haji, he was satisfied that there was nothing wrong with her evidence, it was all right and that he was entitled to accept and act on it. With due respect, however, the learned Chief Justice erred here. Upon her own evidence, P.W.4 is the one who received the video when it was brought to their house in the absence of her husband. She kept it C and then handed it to her husband when the latter returned home. On this score alone P.W.4 is clearly a person with an interest of her own to serve. For, in the event her husband and the appellant are acquitted, she would obviously be the next suspect. As such it would be in her interest to try to shift the blame on others to save her own skin. D

In addition, P.W.4 is the wife of Haji, the accomplice. Given such relationship she could be tempted to give false testimony in favour of her husband and against the appellant. Her evidence, therefore, would require close scrutiny before it could be accepted and be acted upon.

The learned Chief Justice did not do this, he appears to have accepted her E evidence on its face value.

The view we take is that for the reasons we have stated above, P.W.4 was a witness whose evidence needed corroboration before it could be accepted and acted upon. Such evidence which requires corroboration could not itself corroborate accomplice evidence; F and that was another ground for saying that the appellant's conviction was unsupportable.

In the result we allow the appeal, quash the conviction and set aside the sentence with an order that the appellant be released from prison forthwith unless he is otherwise lawfully held. G

The record shows that during the continuance of the trial the court ordered that the video in question be handed to the complainant, Muhamed Mbarak Salum (P.W.1) and his wife Zakia Saleh Ajmy (P.W.2) for safe keeping. Since the appellant has laid no claim over the video, it is directed that the complainant and his wife shall continue to keep and have H the video so long as nobody turns up and establishes before a court of law that he has a better claim over the video than the complainant and his wife have.

I Appeal allowed.

1992 TLR p368

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[zRPz]SAUMU MOHAMED KASSIM v MOHAMED HAJI DAU 1992 TLR 368 (CA)

Court Court of Appeal of Tanzania - Zanzibar

Judge Nyalali CJ, Kisanga JJA, Ramadhani JJA

4 December, 1992

Flynote

Evidence - Documentary - Document not registered as required by law - Right in immovable B property indisputably established between the parties - Whether Court may look at this otherwise inadmissible document.

-Headnote

The appellant, former wife of the respondent, was claiming for a share (50%) in a C house which the two had jointly built. To her plaint she annexed a document which was made and signed by the parties embodying the contract between them. The document was not registered as required by section 4(1) of the Registration of Documents Decree D Cap. 99 of the Laws of Zanzibar. The respondent admitted joint ownership of the house. The Court considered whether in the circumstances it could look at the otherwise inadmissible document.

Held: Where a right in immovable property is indisputably established between the E parties, a document which is otherwise inadmissible to prove the existence of such a right may be looked at by the court for purposes of clarification of the established right.

Case Information

Appeal allowed. F

[zJDz]Judgment

Nyalali, C.J., Kisanga and Ramadhani, JJ.A.: Saumu Mohamed Kassim, hereinafter called, the appellant, instituted a suit in the High Court of Zanzibar at Vuga against G Mohamed Haji Dau, hereinafter called the respondent, for a declaration that house No. T situated at Kidongochekundu in Mjini District within the region of Mjini Magharibi, Zanzibar, is jointly owned by both the Appellant and Respondent, and for an order that, that house be sold by public auction and the proceeds thereof be divided between the H parties according to their respective entitlement; or in the alternative, for an order that the Respondent pay the appellant the sum of shillings 500,000/= being half the value of the house in question. The High Court, Dahoma, J. dismissed the suit in its entirety and ordered each party to bear his or her costs. The Appellant was aggrieved by I

that decision, hence this appeal to this Court. At the hearing of this appeal before us, A each party appeared and argued the case in person.

From the proceedings both in this Court and the court below, it is apparent that much of the primary facts in this case are not in dispute between the parties. It is common ground that the Appellant and the Respondent were married as husband and wife early in the B 1970s, and their marriage was blessed with two children that is, Mohamoud Mohamed Haji Dau (a son) and Asha Mohamed Haji Dau (a daughter). During the subsistence of their marriage, they jointly built the house now in dispute at Kidongochekundu, and agreed to own and enjoy it jointly, and they also agreed on other terms concerning its C use and disposition while they continued to be married or to be alive and also in the case of death of either or both. It is also common ground that subsequently the marriage between the parties come to an end, and that currently, the Respondent is living in the house at Kidongochekundu together with one child of the marriage, while the Appellant D is living in another house at Kikwajuni, Zanzibar. It is common ground that the Appellant got this other house at Kikwajuni from the Respondent during the subsistence of their marriage.

With regard to matters that are in dispute between the parties, it is the appellant's case E that ever since the termination of the marriage of the parties, the Respondent has denied the appellant of her right to enjoy or benefit from the house at Kidongochekundu contrary to the terms of their contract, and that under those circumstances she is discharged from the contract concerning the house, and consequently she is entitled to have her share in F the house paid to her in monetary terms.

The Respondent on the other hand contends that the Appellant is no longer entitled to claim a share in the house at Kidongochekundu for two reasons. First, it is the G Respondent's contention that the house in which the Appellant currently lives at Kikwajuni was given to her by the Respondent as compensation for her share in the house at Kidongochekundu. This is of course denied by the Appellant who contends to have got that house by buying it from the Respondent. Secondly the Respondent H contends apparently in the alternative, that the Appellant is fully compensated for her share in the Kidongochekundu house through the use of that house enjoyed by her children living there with the Respondent.

The first issue for consideration and decision in this case is whether the Appellant was given the house at Kikwajuni by the Respondent as compensation for her share in I Kidongochekundu
1992 TLR p370
NYALALI CJ, KISANGA JJA, RAMADHANI JJA
house or whether she bought it from the Respondent. The Appellant produced a A registered Sale Deed at the trial, and she showed it to us on appeal. The Respondent confirmed this by showing us his own photostat copy of the same Sale Deed made on the 20th March, 1984. The Deed clearly states to the effect that the Respondent had agreed to sell the house situated at Kikwajuni to the Appellant for a sum of shillings fourteen B thousand only. How can anyone in his or her right mind, let alone this Court, construe the Sale Deed to be anything else. We are satisfied that the house at Kikwajuni has been sold by the Respondent to the Appellant and that it is a blatant lie to assert otherwise. C

The second issue for consideration and decision in this case is whether the Appellant is sufficiently compensated for her share in the Kidongochekundu house through the use and enjoyment of that house by the children of her marriage to the Respondent. We do not think that this contention is tenable. This is because the Appellant's share in that house D is distinct and separate from the children's right to use and enjoy the house in question. This is so because the childrens' right arises from their father's (that is, the respondent's) obligation to provide accommodation for them, whereas the appellant's right in that house arises from the joint ownership of the house in accordance with the contract made E between the parties when they jointly built that house. We thus find that the Appellant's share in the house is not compensated for by the use and enjoyment of the house by the children.

The third issue for consideration and decision in the case is whether the Appellant is F entitled to be treated as discharged from the contract as a result of the Respondent's conduct. Obviously, since the Respondent no longer recognised the Appellant's share in the house in question, he is no longer minded to continue to honour the contract. Under G section 39 of the Contract Decree of Zanzibar, Cap. 149 the Appellant is entitled to terminate that contract. Section 39 states:

> 39. When a party to a contract has refused to perform, or disabled himself from performing, H his promise in its entirety, the promisee may put an end to the contract, unless he has signified, by words or conduct, his acquiescence in its continuance.

The fourth and last issue for consideration and decision in this case is whether the I Appellant is entitled to be paid or otherwise
1992 TLR p371
NYALALI CJ, KISANGA JJA, RAMADHANI JJA
compensated for her share in the Kidongochekundu house, and if so how much. A Clearly, the termination of the contract between the parties removes the basis upon which the house in question is jointly owned by the parties and consequently each party is entitled to recover his or her own share. What then is the extent of the Appellant's share in the house? The Appellant annexed to her plaint a document made and signed by the B parties embodying the contract between them. However, this document was not registered as required by sections 4(1) of the

Registration of Documents Decree Cap. 99 of the Laws of Zanzibar and it cannot therefore be relied upon to create a right or interest in immovable property. Fortunately for the Appellant joint ownership of the house is C admitted by the Respondent. We are of the considered opinion that where a right in immovable property is indisputably established between the parties, as is the case here, a document which is otherwise inadmissible to prove the existence of such a right may be looked at by the Court for purposes of clarification of the established right. An D analogous, though not a similar situation was dealt with in the case of Ali Bin Khatibu v Khamis Bin Omar 7 Z.L.R. 113 where it was held that the court could look at an unregistered document relating to a transfer of land not as evidence of title to land but as E evidence that the transferee had entered into the disputed land under colour of a claim adverse to ownership of the transferer.

An examination of the document annexed to the plaint of the Appellant leads one to the conclusion that the parties made equal contributions to the building of the house. This is F apparent from the opening sentence of the document which reads:

Mimi Mohamed Haji Dau, nathibitisha kwamba, kuhusu mada ya hapo juu imejengwa kwa mashirikiano na bibi Saumu Mohamed Kassim kwa gharaza zote (We have underlined the G relevant portion).

In the light of this evidence we are satisfied and find as a fact that each party is entitled to half share of the house at Kidongochekundu. H

The Appellant prays for an order for the sale of the house by public auction. She puts the current value of the house at shillings 1,000,000/=. It is in that light that she claims in the alternative to be compensated by the Respondent paying her a sum of 500,000/= for her share. I

1992 TLR p372

On the basis of the facts established in this case, there can be no doubt that the trial A High Court erred in dismissing the Appellant's claim. We therefore allow the appeal with costs, and order that the Respondent pays the Appellant the sum of shs. 500,000/= or half the value of the house to be assessed or determined by the Government Valuer B within a period of three months from today, and in default, the house to be sold by public auction and the proceeds thereof be divided equally between the parties.

C Appeal allowed.

1992 TLR p372

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[zRPz]HAJI ATHUMANI ISSA v RWEITAMA MUTATU 1992 TLR 372 (HC)

Court High Court of Tanzania - Mwanza

Judge Masanche J

10 December, 1992

Flynote

Taxation of Costs - Bill of costs - Omnibus award - Whether supportable. E

-Headnote

The taxing master entertained an application for the Bill of Costs in the absence of the applicants and awarded what appears to be an omnibus figure of shs. 100,450/=. On appeal against such an award. F

Held: (i) Although judges will in most cases not interfere with questions of quantum the court could interfere if the taxing master clearly acted unjudicially;

(ii) costs which were incurred well after the case had been finalized should not be the G concern of the applicant;

(iii) since the case ended up ex parte and not much research went into the hearing, the award for advocates fees was on the high side.

Case Information

Order accordingly. H

Katabalwa, for the applicant.

Judgment

Masanche, J.: This is an appeal by one Haji Athuman Issa, who is represented by Mr. Katabalwa, the learned advocate, against an award of Bill of costs to one Rweitama I Mutatu. The respondent

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MASANCHE J

was awarded what appears to be an omnibus figure of Shs. A

100,450/=. The respondent had asked to be awarded a figure of shs.131,450/= plus shs. 7,120/= as costs.

It is common knowledge that the applicants had wrongly filed a case, against the respondents, in the High Court. Counsel, Mr. Katabalwa, and Mr. Rweyemamu, appeared before the High Court. In the end, the case got dismissed and the present B applicant was condemned in costs.

The Bill of costs had been filed by the respondent himself, and not an advocate, which has surprised me. Anyhow, it appears Mr. Rweyemamu had or has abandoned the respondent. C

But then, can the respondent come back and claim costs for the appearance of his advocate? This he cannot do, especially where the record does not show whether the respondent appeared or not.

Can, again, the respondent apply to be paid costs for anything that might have happened after the conclusion of the case, which we are told was on 16/10/89? I agree with Mr. D Katabalwa that the respondent cannot so claim.

Admittedly, the application for the Bill of Costs was entertained by the taxing master in the absence of the applicants. But, even then, the taxing master was bound, to my mind, E to consider the reply of the respondent, which was in the file. A person who prosecutes a case alone, in the absence of the other party on the other side, does not have an easy ride to the case. He has, still, to prove the case on a balance of probability. The court does not have to take everything that is thrown in: My brother Bahati, J, has F remarked in the case of Felix M. Shirima v Mohamed Farahani and another, (Civil Case No. 23 of 1981 of High Court Dar es Salaam Registry unreported) that:

There must be proof of the case on the standard required by law, which is on the balance of G probabilities even where a case proceeds ex parte.

Respondent, in this case, while acting ex parte, only threw in figures on the table of the taxing master, and the taxing master endorsed them. He slashed some shs.30,000/= H only.

The law about taxation is this: That judges will in most cases not interfere with questions of quantum, because these are regarded as matters with which the taxing master is particularly fitted to deal with. But, and that is a big 'but', the court could interefere if the I taxing master clearly acted unjudicially. (See the case of Haidan

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MASANCHE J

Bin Mohamed Elmandry and others v Khadija Binti Ali Bin Salen [1956] 23 A E.A.C.A. 313).

The Bill of costs shows that shs. 40,000/= was paid out for Advocates fees. That, to my mind was on the high side. The case ended up ex parte. Not much research went into the hearing. The law provides as follows: B

1. That briefing should be based on the amount of work involved; in preparing for hearing, the difficulties and importance of the case, and the amount of money involved; C

2. Time occupied in the hearing and the amount of research required to examine the issues, is also considered (see the cases of George Mbugus and Another v A.S. Maskini [1980] T.L.R., at page 53 Premchant v Quarry Services [1972] E.A. 1962; and D Haidari's case quoted Supra).

I slash shilling 20,000/= from item No. 1. I award Shs.20,000/= only, on that item.

The items on disbursements have caused me concern. E

It is true that the respondent has inflated some of them, I, again, doubt of the authenticity of many of the food receipts. They all seem to be in the handwriting of the respondent himself. I have also been unable to verify on the lodging receipts. They also seem to be in the handwriting of the respondent himself. F

There are also costs which were incurred well after the case had been finalised. I agree with Mr. Katabalwa that those costs should not be the concern of the applicant. They are therefore struck out. On the whole, on disbursements, I would award Shs.20,000/=. This should also include travel. G

The Bill of costs is taxed at Shs. 40,000/=

H Order accordingly.

1992 TLR p375

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[zRPz]SUSANA JOSEPH v WAMBURA IHEMBE 1992 TLR 375 (HC)

Court High Court of Tanzania - Musoma

Judge Lugakingira J

11 December, 1992

Flynote

Civil Practice and Procedure - Assessors - Summing up to assessors - Magistrates Courts (Primary Courts) (Judgment of Court) Rules, G.N. No. 2, 1988 .

-Headnote

The trial Primary Court magistrate summed up the case to assessors. On appeal the District Magistrate seemed not to be aware of the existence of G.N.No. 2 of 1988 which requires Primary Court Magistrates not to sum up to assessors. On a second appeal to the High Court.

Held: It seems that neither the trial magistrate nor the appellate magistrate is aware of the Magistrates Courts (Primary Courts) (Judgment of Court) Rules, Government Notice No. 2 of 1988. I would particularly draw their attention to Rule 3 thereof which puts an end to the practice of summing up to the assessors. The assessors are to be consulted for their opinions after the conclusion of the evidence without preliminaries.

Case Information

Appeal allowed.

[zJDz]Judgment

Lugakingira, J.: The appellant brought action in the Primary Court at Zanaki for compensation of 16,000/= alleging that the respondent's cattle had destroyed her shamba of millet and potatoes. The claim was unsuccessful, the court holding that the evidence did not establish the identity of the offending animals. It reached that view after observing that neither the respondent nor his ten cell leader was taken to the shamba to confirm the destruction and to satisfy themselves on the identity of the cattle. Additionally, the court criticized the evidence of the field officer in his estimate of the damage occasioned and said the evidence was vague. There was an appeal to the District Court of Musoma which was dismissed on the same grounds, hence this second appeal.

There might be justification in the lower courts' criticism of the field officer's evidence but the rest of their remarks were outrageous having regard to the facts of the case. Apart from the appellant, there was evidence from PW2 Jeremiah Mwandika, the village chairman, and PW3 Mussa Kello, a neighbour of the parties'.

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LUGAKINGIRA J

All three knew the respondent's cattle; all three saw the destruction; all three drove the cattle to the respondent's home. They called out the respondent but at first he ignored them. Finally he came out. As the appellant made to explain their mission he assaulted her so badly that she had to receive medical treatment. She informed me at the hearing of the appeal that she sustained a permanent incapacity as a result of the beating and that she was pursuing that matter separately following the respondent's conviction for the assault. The respondent admitted the conviction. It is astonishing, to say the least, that it is this very man whom the lower courts expected the appellant to take to the shamba and blamed her for not doing so. It is equally amusing that the two courts would have preferred evidence from a ten cell leader but not the village chairman. Furthermore, neither the respondent nor the two courts below had any word of where the respondent sent the cattle delivered at his premises. Of course the respondent

denied that any cattle D were ever delivered at his home and in fact denied over seeing the appellant, PW2 or PW3 on the material day. His "evidence" was nothing but arrogance at its worst, and it is amusing how he carried the lower courts with him.

The decision of the primary court was also not free from contradictions. Take the advice E of the first assessor, Nyambiriti Wikama, for instance. He started off by saying:

> Kwa maoni yangu na kufuatana na ushahidi uliotolewa upande wa madai unaonyesha F kuwa ng'ombe wa mdaiwa walikula shamba la mdai ...,

but ended up saying:

> G ... sioni kama kweli mifugo ya mdaiwa ndiyo ilifanya uharibifu huo.

This problem could partly be accounted for by the summing up factor which found itself in this case. It seems that neither the trial magistrate (J.M. Waigama) nor the appellate H magistrate (N.M. Kaserero) is aware of the Magistrate's Courts (Primary Courts) Judgment of Court) Rules, Government Notice No.2 of 1988. I would particularly draw their attention to Rule 3 thereof which puts an end to the practice of summing up to the assessors. The assessors are to be consulted for their opinions after the conclusion of I the evidence without any preliminaries. If I were convinced that the

summing up in this case was solely or substantially responsible for the decision A reached, I would have felt compelled to quash the proceedings on the ground that the indulgence occasioned a failure of justice. I feel, however, that with or without the summing up, the trial court was under the spell of the respondent as shown by its prejudiced remarks following its visit to the shamba. I do not know how they did not B expect to find bush almost four months after the destruction complained of.

The field officer's evidence was certainly vague. It did not particularise how he reached the figure of 16,000/=. But this did not absolve at the trial court from forming its own C opinion and making a reward it considered reasonable. It would be futile to refer this matter back to that court as the position on the ground must have changed even more drastically and also since the court cannot have got over its prejudices in the case. I will take the risk of adjudicating in the matter and reduce the claim by 6,000/= as an D adjustment for the field officer's vagueness.

The appeal is accordingly allowed and the decisions of the lower courts are set aside. Judgment is entered for the appellant in the sum of 10,000/= with costs here and below. E

Appeal allowed.

F

[zRPz]JOHN MGINDI v REPUBLIC 1992 TLR 377 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Makame JJA, Kisanga JJA, Mapigano Ag JA

14 December, 1992 G

Flynote

Criminal law - Theft - Appellant not having exclusive access to stolen items - Whether grave suspicion against appellant can ground a conviction.

Evidence - Theft - Appellant not having exclusive access to stolen items - Grave suspicion H against appellant - Whether such suspicion can found a conviction.

-Headnote

The appellant was acquitted by the trial court of the offence of theft, On appeal to the High Court by the D.P.P. the decision of the trial court was reversed and the appellant I was convicted and sentenced

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MAPIGANO Ag.JA, MAKAME JJA, KISANGA JJA

accordingly. The appellant had one set of keys to the stolen items. On appeal to the A Court of Appeal it was considered whether the evidence as a whole left no vestige of doubt as to the appellant's complicity.

Held: (i) It was essential for the Court to consider the fact that the appellant did not B have exclusive access to the stolen items which is almost always a material and critical factor in this type of cases;

(ii) while we agree that the grave suspicions that the appellant was the culprit or a party to the crime were not altogether unfounded, we consider that the evidence as a C whole left a vestige of doubt as to his complicity.

Case Information

Appeal allowed.

[zJDz]Judgment

Mapigano, Ag. J.A., Makame and Kisanga, JJ.A.: The Director of Public D Prosecutions was dissatisfied with the acquittal of the appellant John Ngindi made by the district court of Moshi on a charge of breaking into a building and committing theft therein contrary to section 296(1) of the Penal Code. On appeal to the High Court at Arusha the finding of the district court was reversed and the appellant was convicted of the offence E and consequently sent to prison for a 5 - year term. The appellant came to us on appeal against the judgment of the High Court and we heard it at Arusha in September, 1992. We then announced that the appeal would be allowed and the conviction quashed, F and we set aside the sentence and ordered the immediate discharge of the appellant from custody. We promised to give our reasons for the decision at a later date.

The evidence established that at the material time P.W.6 James Michael Shao operated a public-house in the Moshi Municipality and had several barhands in his employment such G as the appellant, P.W.1 Stephen Joseph Kandi and P.W.4 Jasper Athumani. On 25/5/89 at night when the day's business was coming to an end the appellant handed over the bar proceeds to P.W.1 and the latter locked the money into a cash-box and put the cash-box in a store inside the building and then left the premises with the key for the H cash-box. It was admitted that one set of the keys for the store and the building was in the custody of the appellant, and that it was

the duty of the appellant to keep the drinks that remained over back into the store and to lock up the store and I
1992 TLR p379
MAPIGANO Ag.JA, MAKAME JJA, KISANGA JJA
the building before he knocked off. It was further admitted by the appellant that he left A some of the unsold drinks at the counter, which we consider curious.
Came the following morning, and some of the drinks the appellant had left at the counter were missing. Likewise the money in the cash-box, and according to P.W.5 Paul, the B cash-box had been tampered with.
The appellant was a prime suspect but none of the stolen items was traced into his possession. P.W.4, a cook, testified very briefly that he had slept outside the public-house inside a motor vehicle and that he did not see any person coming to the C building after the closure of the business. We are of the view that P.W.4 should also have been a principal suspect in the crime. The point is that his evidence did not disclose why he stayed the night at the building, and we are surprised that he was not closely examined on that point.
The High Court found that there was no breaking anywhere in the building and that the D circumstances tied the appellant to the offence irresistibly. We have been unable to sustain these findings.
There was independent evidence from P.W.4 on which the court could properly find that there was a breaking of the store in which the cash-box was kept. In any case we think it E was essential for the Court to consider the fact that the appellant did not have exclusive access to the stolen items, which is almost always a material and critical factor in this type of cases. As indicated already, it was common ground that another set of keys to the building and the store was in the custody of another person. Accordingly, while we agree F that the grave suspicions that the appellant was the culprit or a party to the crime were not altogether unfounded, we consider that the evidence as a whole left a vestige of doubt as to his complicity.
It is for these reasons that we came to the conclusion that the conviction should be G quashed.
H Appeal allowed.
1992 TLR p380
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[zRPz]CHRISTOPHER MWAKABURA v REPUBLIC 1992 TLR 380 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mnzavas JJA, Mfalila JJA, Mapigano Ag JA

17 December, 1992
Flynote
Statutory interpretation - Offence committed before a new law came into force - Whether B offence punishable under the new law - S.49 Interpretation of Laws and General Clauses Act, 1972.

-Headnote

On 14th September 1989 in the District Court of Ilala at Kivukoni, the appellant, C Christopher Mwakabura was sentenced to 32 years' imprisonment and 6 strokes on a conviction of robbery with violence c/s 285 and 286 of the Penal Code.

The offence was committed before the Written Laws (Miscellaneous Amendments) Act, D 1989, Act No. 10 of 1989, came into operation. At the time of the commission of the offence the minimum sentence for the offence was 7 years' imprisonment as it used to be provided in the Minimum Sentences Act, 1972. In terms of sentencing the power of subordinate courts was limited to 8 years' imprisonment in line with section 170(l) of the E Criminal Procedure Act 1985.

On 26th May 1989, Act No. 10 of 1989 came into operation. Among other things, the Act amended section 5 of the Minimum Sentences Act 1972 by raising the minimum punishment for armed robbery to 30 years' imprisonment; a punishment which was F metted on the appellant by the Ilala District Court. The appellant appealed to the High Court which confirmed his condemnation under Act No. 10 of 1989. On further appeal;

Held: (i) The appellant was, under section 49 of the Interpretation of Laws and G General Clauses Act 1972, not liable to the penalty prescribed by Act No. 10 of 1989.

Case Information

Appeal against conviction dismissed, sentence substituted. H

[zJDz]Judgment

Mapigano, Ag. J.A., Mnzavas and Mfalila, JJ.A.: On 14/9/89 in the district court of Ilala at Kivukoni the appellant Christopher Mwakabura was sentenced to suffer imprisonment for 32 years and 6 strokes, consequent to his conviction for robbery with violence contrary to sections 285 and 286 of the Penal Code. The trial magistrate found I that the appellant and another person

had actually stolen a motor vehicle belonging to the Ministry of Home Affairs on A 19/5/88 and that the vehicle was taken at pistolpoint from the driver. And the magistrate proceeded to punish him in terms of the Minimum Sentences Act, 1972, as amended by the Written Laws (Miscellaneous Amendments) Act, 1989, to which we will refer hereafter as "Act No. 10 of 1989". B

The appellant went to the High Court on appeal challenging the validity of the conviction and propriety of the sentence. The appeal went before Bahati, J. who upheld the conviction upon being satisfied that there was enough evidence to support it. With regard to the sentence, the judge had this to say: C

> The appellant was sentenced to 32 years' imprisonment. I am unable to see where the learned magistrate got the extra 2 years in view of the fact that the district court has got power to impose a sentence of only 30 years for such offence with or without corporal D punishment. I therefore find the sentence of 32 years to be illegal as it contravenes section 5 (bb) of the Minimum Sentences Act as amended by Act No. 10 of 1989 in that the minimum term of

imprisonment for armed robbery is 30 years. The maximum is of course E life imprisonment, but then section 170 of the Criminal Procedure Act does not give the district court power to pass a sentence above 30 years. I will reduce the sentence to 30 years imprisonment.

It is evident that Bahati, J. decided the matter on the basis that Act No. 10 of 1989 is F applicable to the offences specified in that Act, regardless of whether such offences were committed before or after the Act came into operation, and as we shall have occasion to see later herein, the learned judge has firmly held to that view.

The appellant has brought a second appeal to us urging five grounds. However there is G only one ground among them that bears consideration and that is the fifth. The rest pertain to concurrent factual findings of the courts below and are thus misconceived as under the law we are, on such second appeal, obliged to confined ourselves to matters of law. H

The burden of the fifth ground is a technical one. Rephrased, it is this: The District Court had no power to award a jail sentence in excess of 8 years. That court went into error when it invoked the jurisdiction vested in it by Act No. 10 of 1989, since the offence was committed before that Act came into force. The authorities for that contention are I section 49 of the Interpretation of Laws and

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General Clauses Act, 1972, Article 13 (6) (c) of the Constitution of the United A Republic, and the decision of this Court in Mashaka Shabani v R., Criminal Appeal No. 85 of 1990 (unreported).

It is true the offence was committed before Act No. 10 of 1989 came into operation. It is also true that at the time of the commission of the offence the minimum sentence for the offence was 7 years' imprisonment, vide section 5 (b) of the Minimum Sentences Act, B 1972, and that the power of a subordinate court in relation thereto was limited to an award of a term of 8 years, vide section 170 (1) (a) of the Criminal Procedure Act, 1985.

Act No. 10 of 1989 came into operation on 26/5/89. among other things that Act C amended section 5 of the Minimum Sentences Act, 1972, as well as the First Schedule to that Act. It added a new paragraph to section 5, i.e. (bb), by which the minimum punishment for armed robbery was raised to the long stretch of 30 years; and deleted paragraph 4 of the First Schedule which related to robbery. D

We turn to the authorities that the appellant has cited to us. We have noticed that Mashaka Shabani v R. was similar to the present case in all material particulars. The first appeal in that case also went before Bahati, J. who in his judgment considered the applicability of Act No. 10 of 1989 to armed robbery committed before the E commencement of that Act, in the context of Article 13 (6) (c) of the Constitution. That Constitutional provision reads:

For the purposes of ensuring equality before the law, the state shall make provisions: F

> No person shall be punished for any act which before its commission was not defined as such offence, and no penalty imposed for any criminal offence shall be Heavier than the penalty in force at the time the offence was committed. G

The view taken by Bahati, J. was that the sentence of imprisonment for 30 years handed out by the trial court in that case was not offensive to the above provision, inasmuch as long before Act

No. 10 of 1989 was enacted a competent court could pass a maximum H sentence of life imprisonment for the offence. The judge went on to observe:

What has changed now after the enactment of Act No. 10 of 1989 is not the sentence which could be passed by a competent court for armed robbery, but that the subordinate court has I

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been given power to pass sentence of 30 years for armed robbery. A

And he regarded that change as of no consequence.

When the matter came to this Court on a second appeal we differed with Bahati, J. and held: (a) that Act No. 10 of 1989 has substantially changed the punishment for armed B robbery, since the minimum has been raised drastically, and "the situation is not that a court may at its discretion impose a sentence of 30 years' imprisonment but that a court must impose a minimum of 30 years" and (b) that there was nothing in the provisions of Act No. 10 of 1989 which indicates that the appellant was not liable to the penalty C prescribed at the time he committed the offence. We accepted the submission that the terms of section 49 of the Interpretation of Laws and General Clauses Act, 1972, debarred a court from applying Act No. 10 of 1989 to offences which were committed D before that Act came into force. The end-result was that we substituted the sentence with one of 8 years.

Section 49 of the Interpretation of Laws and General Clauses Act provides: E

Where an act constitutes an offence, and the penalty for such offence is amended between the time of the commission of such offence and the conviction therefore, the offender shall, unless the contrary intention appears, be liable to the penalty prescribed at the time of the commission of such offence. F

It is plain that this section is couched in qualified terms: the prohibition of retroaction of penalities is conditional to a contrary intention being absent. In relation to this provision we have paid due attention to section 4 of the Minimum Sentences Act, which reads: G

Where any person is, after the date on which this Act comes into operation, convicted by a court of a scheduled offence, whether such offence was committed before or after such H date, the court shall sentence such person to a term of imprisonment which shall not be less than ...

Then the section goes on to lay down the minimum penalties of imprisonment for the scheduled offences. I

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This section strikes us as probably the most singular feature of the Act. It is hardly A deniable, however, that the section stipulates the sort of "contrary intention" envisaged by section 49 of the Interpretation of Laws and General Clauses Act, and has, therefore, the effect of making the minimum penalty prescribed by any future enactment amending the B Minimum Sentences Act apply retrospectively to any of the offences specified in the three Schedules thereto, regard

being had to the rule restated in section 17 of the Interpretation of Laws and General Clauses Act that an amending Act should be construed as one with the amended Act.
Just the same, we are of the considered and firm view that section 4 above does not C make Act No. 10 of 1989 operate retrospectively in relation to robbery. The reason is to be found in Act No. 10 of 1989 itself. As we have already pointed out, this Act amended the First Schedule by deleting the offence of robbery. We think that this deletion provides a distinct basis for attributing to the legilature an intention to display D the provisions of section 4 to the offence, given the meaning attaching to the term "scheduled offence" by section 3 of the Minimum Sentence Act, namely "an offence specified in any of the schedules to the act". The interesting if odd aspect of all this is that robbery is now set apart from the other offences within the ambit of the Act, in the E sense that it is the only unscheduled offence and wherefore the only one that escapes the grim grasp of section 4.
We held, therefore, that the appellant was, under section 49 of the Interpretation of Laws F and General Clauses Act, not liable to the penalty prescribed by Act No. 10 of 1989. With that it becomes unnecessary for us to advert to Article 13 (6) (c) of the Constitution, and this precludes the more serious exercise of looking into the constitutionality of section 4 of the Minimum Sentences Act and our jurisdiction to do so. G
Accordingly, we dismiss the appeal against the conviction and we substitute a sentence of seven years' imprisonment which is to run from the date of the trial judgment.
H Appeal dismissed.
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A
[zRPz]MILLEN RICHARD v AYUB BAKARI HOZA 1992 TLR 385 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Kisanga JJA, Omar JJA, Mnzavas JJA

18 December, 1992 B
Flynote
Land Law - Disposition of land - Failure to comply with Regulation 3(1) of the Land Regulations, 1948 - Effect.
Contract - Delay in payment of balance of price - Repeated demand letters - Whether right to be paid as per contract thereby waived - Whether breach of contract - Whether right to C rescind contract accrues.
-Headnote
This case involved the disposition of land. Part of the price was paid. The balance of the price was not paid within the contract time. Consequently reminder letters were sent in which dates of payment were extended. The appellate court considered the legal effect D of the reminder letters on the contract and also the effect of failure to get statutory consent from the Commissioner for Lands as required by the Land Regulations, 1948. E

Held: (i) Failure to pay the balance of the price within the two months stipulated in the agreement constituted breach;

(ii) extension of time through the letters of the appellant to the respondent did not constitute waiver and as such did not alter the terms of the agreement; F

(iii) the contract was inoperative because the disposition lacked consent of the Commissioner for Lands. The agreement was, therefore, unenforceable.

Case Information

Appeal allowed. G

[zJDz]Judgment

Omar, Kisanga and Mnzavas, JJ.A.: The appellant Millen Richard entered into a sale agreement with the respondent Ayub Bakari Hoza whereby the semi detached house erected on plot No. 239 Block "B" in Sinze Area belonging to the appellant would pass H to the respondent as the latter's property. Among the terms of agreement was the one concerning the sale price of Shs.550,000/= to be paid by the respondent. The parties agreed that first payment of Shs.400,000/= would be paid on the date of the signing of the agreement on 9/7/86, and it was paid by the purchaser, Ayub Hoza, on that date. I The balance of Shs.150,000/= was mutually agreed to

be paid after a period of two months, that is on 9/9/86, this was not paid, till 1991, A even after repeated letters of demand and the filing of the suit in the High Court. The High Court (Rubama, J.) did not rescind the contract as argued by the appellant because it was considered that the letters of demand by the appellant altered the terms of agreement by extending the time for payment of the balance of 150,000/=. In one B letter dated 17/6/87 the respondent was given a period of 10 days in which to pay this balance. In a subsequent letter the respondent was given four more days from the date of this other letter in which to pay. Then there was the last letter by the appellant's advocate to the respondent dated 11/2/88 informing him that the agreement had been C rescinded and the down payment of Shs. 400,000/= was ready for collection by the respondent.

At the end of the trial in the High Court the defendant was ordered to pay Shs. 150,000/= and he did pay to the Court on 26/3/92. The trial judge forgot to award D general damages, which the Court felt it should be paid. All in all what we consider crucial in this matter is the consent by Commissioner for Lands to the transfer of this building to the respondent. This requirement is contained in Land regulations of 1948, regulation 3 (1). It is also in Clause 7 of the sale agreement which states that lack of E consent to the disposition Clause 2 (b) vitiates the agreement which stipulates the two months for payment of the remainder of the Sale Price, also has been contravened. Nor do we think that the extension of time through the letters of the appellant to the respondent in anyway alters the terms of agreement. Extension of time was merely to F facilitate payment. The conduct of the respondent in this deal with the appellant leaves much to be desired. The respondent himself admitted in this Court thus "I was not

replying to her letters (of demand) nor did I engage any advocate because I had done no wrong (in connection with this contract)". G

We have reached the following decision. (a) The contract was in-operative because the disposition lacked consent of the Commissioner for Lands. The agreement was therefore unenforceable. The breaking of Clause 2 (b) of the Sale Agreement also is a factor which justifies rescission of the agreement. H

We therefore allow the appeal with costs. We also make the following orders. (a) general damages at the bank rate of 30% on 150,000/= for six years i.e. 1986 to 1992 amounting to Shs.270,000/= to be paid to the appellant. Costs of improvements to the house effected by the respondent to be paid to the respondent by the appellant. High I Court to appoint a Valuer agreeable to both parties

who would assess costs of improvements of the house in dispute and to do so any A time between 15/1/93 and 15/2/93. (b) Respondent to give vacant possession of the premises to the appellant within the period of three months from 15th February, 1993. (c) The Appellant to return 400,000/= to the respondent within one month from the date of judgment. (d) Shs. 150,000/= received by the High Court to be returned to the B respondent.

Appeal allowed.

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C

[zRPz]THE PRINCIPAL SECRETARY, MINISTRY OF DEFENCE AND NATIONAL SERVICE v DURAM P. VALAMBHIA 1992 TLR 387 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Kisanga JJA, Omar JJA, Mnzavas, JJA

D

18 December, 1992

Flynote

Civil Practice and Procedure - Court of Appeal Rules - Letter to Registrar applying for copy of proceedings - Copy of letter not served on respondent - Whether applicant is duty bound E to serve copy of letter to Registrar to respondents - Whether there is a time limit within which to serve copy of the letter - Rule 83 (i) of the Court of Appeal Rules construed.

Civil Practice and Procedure - Court of Appeal Rules - Notice of motion does not specify F relief sought - Accompanying affidavit specifies relief sought - Oral address specifies relief sought -Whether the affidavit and/or the oral address specifying relief sought can take care of the inadequacy in notice of motion.

Civil Practice and Procedure - Court of Appeal Rules - Application for extension of time to G serve respondents with copy of letter to Registrar applying for copy of proceedings not mentioned in notice of motion - Relief sought specified in affidavit and mentioned when orally addressing the Court - Whether application for extension of time properly before the court. H

Civil Practice and Procedure - Court of Appeal Rules - Payment of court fees and security for costs by Government - Government expressly exempted from paying court fees in respect of criminal applications and criminal appeals before the Court of Appeal - Rules are silent on payment of court fees and security for costs by Government in respect of civil I matters before Court of Appeal

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A - Whether Government to pay court fees and security for costs in respect of civil matters before the Court of Appeal.

Civil Practice and Procedure - Court of Appeal Rules - Long established tradition that Government does not pay court fees and security for costs - Whether such tradition can be a basis for exempting Government from paying court fees and security for costs in respect B of civil matters before the Court of Appeal.

Civil Practice and Procedure - Court of Appeal Rules - Application for extension of time to pay court fees and security for costs - Illegality of decision being challenged - Whether sufficient reason to allow the application. C

-Headnote

Mr. D.P. Valambhia won a case in the High Court which was filed by M/s Transport Equipment Ltd. (TEL). In awarding relief to Mr. Valambhia the High Court made certain orders against the Government of Tanzania (The Ministry of Defence and D National Service) which was creditor to TEL. The High Court ordered the Principal Secretary Ministry of Defence and National Service to comply with a garnishee order which, inter alia, required the Government to pay the sum of approximately US $ 39,823,543.25 to Mr. Valambhia's overseas bank account and that such payment E was to be effected within three weeks of the order.

The appellant sought to challenge the order of the High Court on the grounds, among others, that no opportunity was afforded to the Government to be heard and that there was some illegality involved in respect of the order. F

At the hearing of the appeal, counsel for the respondent took a preliminary objection to the appeal based on non-compliance with rules 76, 77 and 83 of the Court of Appeal Rules. Counsel contended that the appeal was time-barred. It was argued that the Rules were not complied with in that a copy of the letter to the Registrar applying for the G proceedings was not served on the respondent. It was further pointed out that a notice of motion by the appellant before a single Judge of the Court of Appeal did not specify the relief sought, i.e, extension of time within which to serve the respondents with a copy of the letter to the Registrar. A number of other aspects were considered including H whether or not the Government has to pay court fees and security for costs in respect of civil matters before the court of Appeal and if so whether there was sufficient reason to extend time to allow the Government pay court fees and security for costs. I

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Held: (i) There must be a time limit within which the appellant is to serve the A respondent with a copy of the letter to the Registrar. We think that the period of 30 days within which the appellant is required under rule 83(1) to apply to the Registrar for a copy of the proceedings

should be construed to be co-extensive with the period within which the appellant has to send a copy of that letter to the respondent; B

(ii) a notice of motion and the accompanying affidavit are in the very nature of things complementary to each other, and it would be wrong and indeed unrealistic to look at them in isolation. The proper thing to do is to look at both of them and if on the basis C of that it is clear what relief is being sought then the Court should proceed to consider and determine the matter, regard being had to the objection, if any, raised by the opposite party;

(iii) an oral address can take care of the inadequacy in the notice of motion by referring specifically to the relief being sought; D

(iv) the appellant's application for extension of time to serve the respondent with a copy of the letter to the Registrar applying for a copy of the proceedings was both before the single judge and also before the full court upon the reference from the decision of the single judge; E

(v) the silence in the Court of Appeal Rules on whether or not Government has to pay court fees in respect of civil matters before the Court of Appeal can only be construed to mean that the framers of the Rules intended that the Government should pay court fees in civil cases. Likewise the Government is obliged to pay security for F costs there being no express or implied exemption;

(vi) since the long established practice that the Government does not pay court fees is not sanctioned in law it can never acquire legal legitimacy however long it might be;

G (vii) where the point of law at issue is the illegality or otherwise of the decision being challenged, that is a point of law of sufficient importance to constitute a sufficient reason within rule 8 of the Court of Appeal Rules to overlook non-compliance with the requirements of the Rules and to enlarge the time for such compliance. The same applies here. H

Case Information

Preliminary objection overruled.

Mrema, for the appellant.

Maira and Marando, for the respondent. I

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[zJDz]Judgment

Kisanga, Omar and Mnzavas, JJ.A.: In Dar es Salaam High Court Civil Case A No. 210 of 1989 the plaintiff, Messrs. Transport Equipment Ltd. (TEL) filed a suit against the defendant Mr. D.P. Valambhia. In answer to the plaint Mr. Valambhia filed a written statement of defence in which he denied the claim and, in addition, raised a counter-claim against TEL. TEL did not file a reply to the written statement of defence, B nor a written statement of defence to the counter-claim. Furthermore, on the date fixed for hearing, the plaintiff's side could not adduce evidence in support of its case either. Whereupon the High Court (Rubama, J.) upon application by Mr. Valambhia's Counsel, gave judgment for Mr. Valambhia, dismissing the plaintiff's claim and C allowing the defendant's counter-claim. In allowing Mr. Valambhia's counter-claim against TEL, the learned judge also ordered the Government of Tanzania to pay to Mr. Valambhia and his family, certain monies owing from the Government of Tanzania to TEL. The monies to be thus paid to Mr. Valambhia were part of the proceeds of a D contract between the said Government

of Tanzania and TEL. The Government was further ordered to pay these monies to Mr. Valambhia's designated overseas bank account.

Upon application by Mr. Valambhia for execution of the judgment, the High Court E (Msumi, J.) granted a garnishee order requiring, inter alia, the Government of Tanzania to pay the sum of approximately US Dollars 39,823,543.25 to Mr. Valambhia's overseas bank account. Upon further application by Mr. Valambhia the High Court F (Rubama, J.) ordered the Principal Secretary, Ministry of Defence and National Service to comply with the garnishee order within three weeks. That is to say, the High Court ordered the Principal Secretary to comply with the garnishee order which, inter alia, required the Government to pay the sum of approximately US Dollars 39,823,543.25 G to Mr. Valambia's overseas bank account, and that he should effect such payment within three weeks of the order. It is from that order that this appeal now arises.

At the hearing of the appeal the appellant, the Principal Secretary, Ministry of Defence and National Service, was represented by Mr. F. Mrema, Director, Civil and H International Department in the Attorney-General's Chambers assisted by Mr. S. Salula, State Attorney. Mr. H. Maira and Mr. M. Marando, learned advocates, appeared for the respondent, Mr. Valambhia.

Counsel for the respondent took a preliminary objection to the appeal which objection I is based on non-compliance with rules

76, 77 and 83 of the Court of Appeal Rules. Mr. Maira submitted in effect that the A appeal was time barred in that it was not instituted within 60 days of the date of the notice of appeal as required by rule 83 (1) of the Rules. In order to appreciate fully this submission by Counsel, it is necessary to give a brief account of the background to this matter. B

The ruling being appealed from was delivered on 10.5.91. The notice of appeal was given in time on 17.5.91, and the letter to the Registrar applying for a copy of the proceedings was also sent in time on 11.5.91. However, copies of the said notice of appeal and of that said letter to the Registrar were not sent to the respondent, and after C the prescribed time for serving these documents on him had expired, the respondent applied to a single judge of this Court to strike out the appellant's notice of appeal on the grounds of failure to serve copies of these two documents on him.

In a counter-application, however, the appellant asked for extension of time in order D to serve the said documents on the respondent. The single judge allowed the application to strike out the notice of appeal, and rejected the counter-application for extension of time. Upon a reference from the decision of the single judge, however, the notice of appeal was restored and the appellant was granted extension of time during which to E serve the documents on the respondent, which he did.

According to Mr. Maira, the appellant so far, has only sought and obtained extension of time to serve on the respondent a copy of the notice of appeal. No extension of time has F been obtained or sought by the appellant to serve the respondent with a copy of the letter to the Registrar applying for a copy of the proceedings. In these circumstances therefore, Counsel contended that although the Registrar did issue a certificate in terms of rule 83 (1) of the Rules,

that certificate was issued in error, and the appellant was not entitled to rely on the proviso thereto to exclude the time which was necessary for the G preparation and supply of a copy of the proceedings to him. If the Registrar's certificate is excluded, Counsel went on, the institution of the appeal is long time barred because it was not instituted within 60 days of the date of the notice of appeal, and the appellant H has not taken the necessary steps to avail himself of the protection under the proviso to rule 83 (1).

Mr. Mrema's reply to this submission was twofold. First, he submitted that there was no fixed period within which he was bound to serve the respondent with a copy of the letter I to the Registrar. Contrasting this position with that under rule 77 of the rules whereby

the appellant is required to serve the respondent with a copy of the notice of appeal A within seven days of the date of the notice of appeal, the learned Counsel submitted that there is no comparable rule requiring the appellant to serve a copy of the letter to the Registrar on the respondent within specified time. In his view, the time to serve the B respondent with this document was open and he could serve it on him at any time.

In the alternative Mr. Mrema contended that if there was any fixed time for such service, then he did apply for extension of such time and that his application, though rejected by the single judge of this Court, was granted by the full Court upon a reference from the C decision of the single judge.

In response to the first limb of Mr. Mrema's submission, Mr. Maira submitted that upon construction of rule 83 (2) of the Rules, a copy of the letter to the Registrar applying for copy of proceedings must be served on the respondent within 30 days of the date of D the decision being appealed from. The relevant part of Rule 83 of the Court of Appeal Rules provides that:

> 83 - (1) subject to the provisions of Rule 122, an appeal shall be instituted by lodging in E the appropriate registry, within sixty days of the date when the notice of appeal was lodged -
>
> (a) a memorandum of appeal, in quintuplicate;
>
> (b) the record of appeal, in quintuplicate;
>
> F (c) the prescribed fee; and
>
> (d) security for the costs of the appeal,
>
> save that where an application for a copy of the proceedings in the High Court has been made within thirty days of the date of the decision against which it is desired to appeal, G there shall, in computing the time within which the appeal is to be instituted be excluded such time as may be certified by the Registrar of the High Court as having been required for the preparation and delivery of that copy to the appellant.
>
> H (2) An appellant shall not be entitled to rely on the exception to sub-rule (1) unless his application for the copy was in writing and a copy of it was sent to the respondent.

We think that Mr. Mrema's view is untenable when he says that there is no specified I period within which to serve the respondent

with a copy of the letter to the Registrar. To uphold this submission would make it A difficult or impossible to determine when a respondent to an intended appeal can seek remedy against the appellant for non-compliance with this requirement. Indeed it might render this requirement meaningless in so far as the respondent is concerned. For instance, where the respondent seeks to have the notice of appeal struck out for B failure by the appellant to institute the appeal within 60 days of the date of the notice of appeal, the appellant can always get away with it by saying that he has not received a copy of the proceedings from the Registrar even though the letter to the Registrar applying for such proceedings has not been sent to the respondent, and he could go C on relying on such a defence indefinitely. In our view, that cannot have been the aim of the proviso to rule 83 (1). There must be a time limit within which the appellant is to serve the respondent with a copy of the letter to the Registrar. We think that the period of 30 days within which the appellant is required under rule 83 (1) to apply to the D Registrar for a copy of the proceedings should be construed to be co-extensive with the period within which the appellant has to send a copy of that letter to the respondent. That serves to ascertain the period after which the respondent to an intended appeal can apply to have the notice of appeal struck out for failure to institute the appeal. What is, E he can do so after 60 days of the notice of appeal, and the appellant can raise the defence that he has not yet received such proceedings, only if he had sent to the respondent a copy of his letter to the Registrar applying for those proceedings, and that a copy of that letter was so sent within 30 days of the date of the decision being F appealed from.

Having said that, it is necessary to point out here, however, that Mr. Maira cannot be right when he submitted that the Registrar issued to the present appellant the certificate under rule 83 (1) in error because the appellant had not served the respondent with a G copy of the letter to the Registrar. It is undisputed that the appellant's application to the Registrar was made within 30 days of the date of the decision being appealed from as required by rule 83 (1). Therefore, the Registrar was perfectly entitled to issue the H certificate as he did, and we could find nothing wrong with that. The issue whether or not the appellant can rely on the certificate, as he was trying to do in this case, is quite a different matter. As amply demonstrated above that issue depends on whether a copy of the appellant's letter to the Registrar applying for a copy of the I

proceedings was sent to the respondent within 30 days of the date of the decision A being appealed from.

In answer to Mr. Mrema's alternative submission that the application for extension of time to serve the document in question on the respondent was before the single judge and that it was part of the subject matter of the reference from the single judge to the B full Court, Mr. Maira strongly contended that such application was neither before the single judge nor before the full Court.

The record shows that the matter was brought before the single judge in Civil Application No. 18 of 1991 by a notice of motion the relevant part of which reads: C

NOTICE OF MOTION

(Under Rule 8 and 77 (i) of the Tanzania Court of Appeal Rules 1979) D

TAKE NOTICE that on the ..... day of ..... 1991 at 9.00 o'clock in the morning or soon thereafter as he can be heard the Applicant will move the court for an order that an Extension of time be granted to enable the intended Appellant serve copies of the Notice E of Appeal on the Respondent.

This Application will be supported by the Affidavit of Felix C. Mrema sworn on the 28th day of May, 1991.

In the accompanying affidavit of Mr. Mrema it is disclosed in paragraphs 5 and 6 that F the appellant's Counsel had instructed his junior staff to serve copies of the notice of appeal and of the application for a copy of proceedings in this matter on the respondent through his advocates, but that such instructions were never carried out. And in G paragraph 9 the deponent says:

9. THAT I pray in the interest of Justice that this appliction for an Extension of time to serve the Respondents with a copy of the Notice of Appeal and a copy of the Application for a H certified Copy of the order, Ruling and Proceedings in the High Court Civil Case No. 210 of 1989 be granted.

Mr. Maira contended that there was no application for extension of time to serve the respondent with a copy of the letter to the Registrar because the notice of motion I makes no reference to such application;

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KISANGA JJA, OMAR JJA, MNZAVAS JJA

it refers only to the application for extension of time to serve the respondent with a A copy of the notice of appeal. Conceding that Mr. Mrema's affidavit makes it plain that the appellant was applying for extension of time to serve a copy of the said letter on the respondent, learned Counsel strongly maintained that that was immaterial. In his view, the relief sought must be set out in the notice of motion, while the affidavit merely B provides the evidence in support of the application. Thus, he concluded, since the application for extension of time to serve copy of the letter to the Registrar on the respondent was not set out or averred in the notice of motion, such application was not before the single judge in Civil Application No. 18 of 1991, and therefore any C reference from the decision of the single judge to the full Court in this application cannot have involved that issue.

We agree with Mr. Maira that a notice of motion should make reference to the relief which it is proposed to ask the Court to grant. Mr. Mrema's notice of motion in Civil D Application No. 18 of 1991 complied with this requirement only as regards the application for extension of time to serve the respondent with a copy of the notice of appeal. It does so by citing rules 8 and 77 (1) of the Rules and by mentioning specifically the relief which it is proposed to apply for. Admittedly, however, this was E not quite the case as regards the copy of the letter to the Registrar. The notice of motion cites rule 8 which relates to extension of time but without indicating the purpose for which extension of time would be sought. The question now is whether this omission was fatal. Mr. Maira strenuously contended that it was fatal notwithstanding that the F accompanying affidavit made it clear that the appellant was seeking that relief. Mr. Maira, however did not refer us to any authority for this proposition. We think that in a situation like

this one it would not be right to look at either the notice of motion or the accompanying affidavit in isolation. A notice of motion and the accompanying affidavit G are in the very nature of things complementary to each other, and it would be wrong and indeed unrealistic to look at them in isolation. The proper thing to do is to look at both of them and if on the basis of that it is clear what relief is being sought then the Court should proceed to consider and determine the matter, regard being had to the H objection, if any, raised by the opposite party.
With that approach in mind then it was open to the single judge in the present case to do either of the two things: He might have required the appellant to amend the notice of I motion so as to include reference to the proposed relief, i.e. extension of time to

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serve the respondent with a copy of the letter to the Registrar, and thereby bring it in A line with the contents of paragraphs 5, 6 and 9 of the accompanying affidavit alluded to earlier. We should add that if the respondent's Counsel had noticed this inconsistency between the notice of motion and the accompanying affidavit, he had a duty as an officer B of the Court to point it out so that the Court might require the appellant to effect the desired amendment.
Altenatively the judge could consider the notice of motion and the accompanying affidavit, in the light of any opposition by the other party, and proceed to determine the application. We think that this is exactly what the learned single judge did, and we held C that view for the following reasons:- First, upon reading through the notice of motion together with paragraphs 5, 6 and 9 of thje accompanying affidavit above cited, one can be left in no doubt whatsoever that the appellant was seeking extension of time to serve the respondent with not only a copy of the notice of appeal but also with a copy of the D letter to the Registrar applying for a copy of proceedings. For, the notice of motion cites rule 8 of the Rules, which deals with extension of time fixed for the doing of various things under the Rules, and the affidavit specifically requests for extension of time to serve on the respondent a copy of the letter to the Registrar. The two documents read E together make it abundantly clear what relief the appellant was seeking.
Secondly, in granting the respondent's application to strike out the appellant's notice of appeal, the learned single judge specifically referred to the appellant's application for extension of time to serve on the respondent a copy of the letter to the Registrar. The F relevant part of the Ruling of the learned single judge reads:

> Mr. Valambhia seeks to have the notice of appeal lodged by Mr. Kejo struck out on the ground that Mr. Kejo has failed to take some essential steps in the proceedings i.e. that G he has not served a copy of the notice of appeal and a copy of the letter applying for a copy of the record of the proceedings in the High Court on him. And in Civil application No. 18 of 1991, filed on 29/5/91, Mr. Kejo, through, the Attorney General, admits that he has so H failed. But Mr. Mrema, a Principal State Attorney in the Attorney General's Chambers, contends on his behalf that the failure is excusable and applies, under Rule 8 of the Court of Appeal Rules, 1979, for extension of time to effect the service, which application is I strongly opposed by Mr. Valambhia.

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Mr. Mrema added that in his oral address before the single judge he also made it A clear that he was seeking extension of time to serve the respondent with a copy of the letter to the Registrar, and this is been out by the learned single judge when in the above extract taken from his Ruling he said:

B But Mr. Mrema, a Principal State Attorney in the Attorney General's Chambers contends on his behalf that the failure is excusable and applies, under rule 8 of the Court of Appeal Rules, 1979 for extension of time to effect the service, which application is strongly opposed by Mr. Valambhia. C

In the case of Osongo and Another v R. [1972] E.A. 170 a notice of motion was filed in the Court of Appeal for Eastern Africa for extension of time to file notice of appeal. Before this was heard, an application for the same relief was made in the High Court but D was dismissed. Like in our own set up today both the High Court and the then Court of Appeal had concurrent jurisdiction over the matter but the applicant must go to the High Court first. When the motion came up for hearing in the Court of Appeal the question was whether the application was incompetent because it had been filed there E before the application to the High Court. The Court held:

We think that a motion is an oral application and therefore that it is made at the time when the applicant addresses the Court or judge, not when the notice of motion is filed. F

That decision can be taken to support the view that Mr. Mrema's oral address took care of the inadequacy that was in his notice of motion by referring specifically to the relief being sought. Otherwise the decision is equally consistent with the broader view G we have taken that both the notice of motion and the accompanying affidavit have to be taken together in considering and determining the application.

In the light of all this therefore, we can find no merit in Mr. Maira's contention that the appellant's application for extension of time to serve the respondent with a copy of the H letter to the Registrar was never before the single judge. The pleadings and the Ruling thereon make it plain that that appliction was before the single judge who specifically considered it but rejected it.

Equally devoid of merit is Mr. Maira's assertion that likewise the matter was never I before the full Court which considered the

reference from the single judge. Indeed in urging that point Mr. Maira had strongly A maintained that although the full Court granted the extension of time to serve the respondent with a copy of the letter to the Registrar, there was no request for such relief and that the full Court simply went out of its way to grant a relief that was never asked B for. The learned Counsel claimed that what was done here was akin to what was done by the High Court and strongly criticized by this Court in the case of The Attorney General v W. K. Butambala Criminal Appeal No. 37 of 1991 (Unreported).

There can hardly be any substance in Mr. Maira's allegations. The following extract C which is taken from the Ruling of the full Court upon reference from the single judge would serve to put the matter beyond all doubt:

This is a reference arising from the ruling of a single judge of this Court granting an D application to strike out a notice of appeal for failure to take essential steps in the proceedings, and at the same time refusing a counter application for extension of time to take such essential steps.

It was common ground that the Principal Secretary Ministry of Defence and National E service, failed to serve on Mr. D. P. Valambhia a copy of his notice of appeal and a copy of his appliction to the Registrar, High Court, for copy of proceedings in respect of an intended appeal against the ruling of the High Court requiring him to comply with a F garnishee order of that Court within three weeks.

And after considering the merits of the application the Court allowed the reference in the following terms:

G In the result the reference is allowed. The notice of appeal is restored, and the Principal Secretary Ministry of Defence and National Service is to serve the opposite party with copies of the documents in question within four days of his receipt of this ruling. H

It seems clear from these quotations that the full Court upon a reference from the single judge dealt with, inter alia, the appellant's application for extension of time to serve the respondent with a copy of the letter to the Registrar and, overturning the single judge, I duly granted it. Mr. Maira's claim that this Court, upon a reference

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from the single judge granted the appellant an extension of time gratuitously was A gravely misconceived and wholly unjustified. For, to say the least, Mr. Mrema having been aggrieved by the decision of the single judge, one would naturally expect him on reference to ask the full Court to reverse the refusal of his application by the single judge and to proceed to grant him extension of time to serve on the respondent not only a B copy of the notice of appeal but also a copy of the letter to the Registrar. In other words, knowing that he was specifically being charged with failure to serve the two documents on the respondent, it is inconceivable that he would have asked the full Court for extension of time to serve on the respondent only one document and not both of C them. His request for extension of time was in respect of both documents, and the full Court granted the request accordingly.

To sum up on this point, therefore, we are satisfied that the appellant's application for extension of time to serve the respondent with a copy of the letter to the Registrar D applying for a copy of the proceedings was both before the single judge and also before the full Court upon the reference from the decision of the single judge.

The other ground of the preliminary objection, also based on rule 83 (1), turned on non-payment of Court fees and security for costs of the appeal by the appellant. It E was conceded that none of these payments had been made, and so Mr. Maira charged that there was no excuse or justification for such non-payment. He stated that the Government was exempted from paying Court fees in specific situations. For instance, under rule 10 of the Court Fees Rules 1964 G.Ns. 308 and 411 the Government is F exempted from paying Court fees in Civil and Criminal matters in the lower Courts, while under rule 112 (b) of the Court of Appeal Rules the

Government is expressly exempted from paying Court fees in respect of any criminal application or criminal appeal in the Court of Appeal. The Court of Appeal Rules, however, are silent on the G payment of Court fees by the Government in civil matters. Mr. Maira strongly submitted that the necessary conclusion to be drawn is that the Government is not exempted from paying court fees or security for costs in civil matters in the Court of Appeal. And since H the Government has not made these payments, and has not applied for extension of time to do so, then the appeal is in terms of rule 84 (a) deemed to be withdrawn.

As stated earlier, it was conceded for the appellant that no payment of fees or security for costs had been made. Mr. Mrema conceded further that he was unable to cite any I legal provision which

exempted the Government from such payments. We should add that we too have not A succeeded to find one so far. But Mr. Mrema contended that there has been established in this country a long tradition now whereby the Government has not been required to pay court fees or security for costs in such matters in the Court of Appeal. This, he said, B was in keeping with the practice in some Commonwealth jurisdictions including England, whereby the Government is exempted from such payments. He concluded by saying in effect that if there was non-compliance by the Government here, this necessarily resulted from the long practice of not requiring the Government to make C such payment. In the circumstances, he went on, it would be unjust to penalize the Government on this occasion for following an established practice which for a long time has never been questioned.

As noted before, rule 10 of the Court Fees Rules 1964 G. Ns. 308 and 411 exempts D the Government from paying court fees in both criminal and civil matters in the lower courts, while under rule 112 (b) of the Court of Appeal Rules the Government is expressly exempted from paying court fees in criminal applications and criminal appeals, but nothing is said about payment of fees in civil matters. We are unable to construe E such silence to mean exemption from payment of fees in civil matters. Since the framers of the Rules obviously had in mind the issue of exemption, and indeed expressly granted exemption in criminal matters, than if they were so minded they would have equally granted exemption in civil matters. We are inclined to agree with Mr. Maira that such F silence can only be construed to mean that the framers of the rules intended that the Government should pay court fees in civil cases. Likewise the Government is obliged to pay security for costs as we could find no basis for express or implied exemption.

It is true that this view is not in harmony with the total exemption which the G Government enjoys in the lower Courts, but for reasons given above we could not construe rule 112 (b) of the Court of Appeal Rules to come to any different conclusion. If the omission to grant total exemption was really not intended, then it is suggested that the appropriate authority might consider amending rule 112 (b) of the Court of Appeal H Rules to harmonize the position with that of total exemption accorded to the Government in the lower Courts.

We have given due consideration to Mr. Mrema's submission that to threw out the appeal on this ground would amount to penalizing the Government on this occasion for I having followed a

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practice which for a long time has never been questioned. It could very well be that A the Registry staff concerned either consciously or through inadvertence failed to require the Government to pay court fees and security for costs in the past. It may also be that this practice has gone on for a long time. But a practice which is not sanctioned in law can never acquire legal legitimacy however long it might be. Indeed if there was B nothing else to this matter we would have been inclined to uphold the preliminary objection on this ground, but there are other matters to be considered along-side this omission. We shall come back to this point later on but meantime we prepare to deal with the respondent's last ground of objection. C

This ground was argued on behalf of the respondent by the learned advocate, Mr. Marando. He pointed out that grounds 5 to 8 of the memorandum of appeal relate to appeal against the judgment in the main suit i.e. Civil Case No. 210 of 1989. He contended that to that extent this appeal is incompetent because the appellant has not D given any notice of appeal in respect thereof and has not sent any copy of such notice to the respondent as required by rules 76 and 77, respectively, of the Rules. Pressing the point further, he charged that the appellant has not even bothered to seek extension of time to take these steps. On these grounds Counsel submitted that the appeal as E contained in grounds 5 to 8 relating to the main suit should be struck out as being incompetent.

Our own view of the matter is that the order of 10.5.91 which is the subject matter of this appeal is so closely interwoven with the judgment in the main suit that it would be F unrealistic to consider the propriety or otherwise of the said order in isolation. In other words one cannot effectively question the order without reference to the judgment in the main suit from which that order springs. In practical terms the said order is an amplification of the relief granted to Mr. Valambhia in the main suit. It is, if you wish, a G culmination of the relief granted in the main suit. So that a notice of appeal against the order of 10.5.91 by necessary implication means that the decision in the main suit, in so far as it extends to the order, is also being challenged. Therefore, in our view it was not strictly necessary to give a separate notice in respect of the main suit. H

As intimated earlier, we now revert to the matters which have to be considered along-side the omission by the Government to pay court fees and security for costs in this intended appeal. Glancing through the memorandum of appeal and upon hearing Mr. Mrema in answer to this preliminary objection, it becomes evident that the main I grievance of the appellant is that he was not given the

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opportunity to be heard against the garnishee order. He was condemned unheard. A That, Mr. Mrema submitted, offended against the principle of natural justice.

Mr. Mrema submitted further that had the appellant been afforded the opportunity of being heard, he or his Counsel would have raised the issue of the illegality of the B proceedings leading to the granting of the garnishee order in that they violated the provisions of the Government Proceedings Act 1967 which lays down the procedure of bringing suits against the Government. Under the same Act he would have challenged the legality of the garnishee order as a method of executing court decrees against the C Government. He would also have questioned the validity of the order of 10.5.91 requiring the appellant to comply with the garnishee order within three weeks which compliance would be in violation of Exchange Control Regulations.

While avoiding the risk of going into the merits of the case, we think that the points D raised are sufficiently weighty. They are such that if proved they go to the root of the matter. For instance, they allege illegality of the order or orders of the Court. That is obviously a point of law. In Civil Reference No. 9 of 1991 involving the same parties as in this case, we took the view that where the point of law at issue is the illegality or E otherwise of the decision being challenged, that is a point of law of sufficient importance to constitute sufficient reason within rule 8 of the Court of Appeal Rules to overlook non-compliance with the requirements of the Rules and to enlarge the time for such compliance. The same applies here. So that although we would have upheld the F preliminary objection on the grounds of failure by the Government to pay court fees and security for costs in this appeal, there ought to be afforded opportunity for the Court to ascertain on the issues raised and, if the allegations are established, take appropriate measures. G

In the result the preliminary objection is overruled. It is further directed that the Government is to pay the Requisite Court fees and security for costs within 7 days of the receipt of this Ruling by the parties. Although the general rule is that in civil cases he who wins has his costs, we think that in the unusual circumstances of this case each H party is to bear his own costs. It is ordered accordingly.

I Ordered accordingly.

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Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Omar JJA, Ramadhani JJA and Mapigano Ag JA

8 January, 1991
Flynote
Civil Practice and Procedure - Pleading - Plaint - Conversion not alleged - Whether may be legally inferred. B
Civil Practice and Procedure - Parties to a suit - Appointment of an agent for purposes of court proceedings -Principal dies - Effect. C
Evidence - Torture - Finding of torture made before evaluating defence evidence-Whether proper

Criminal Practice and Procedure-Jurisdiction-Sungusungu legislation-Scope of licence given to sungusungu. D

Tort-Conversion-Need to specify kinds.

Tort - Tortfeasors-Court order that independent tortfeasors meet award jointly and severally-Whether warranted.

Tort-Compensation-Assessment-Date of-Whether of conversion or judgment.

-Headnote

In December, 1982 a group of people known as sungusungu invaded the homestead of the respondent tortured E him and drove away his 316 head of cattle and 2 goats. The animals were later distributed to the appellants. The respondent successfully sued the appellants in the High Court. F

On appeal the appellants challenged the decision of the High Court on several grounds including first, that conversion was not alleged in the plaint, second, that a finding of torture was made before the court evaluated defence evidence, third that the kinds of conversion were not specified, fourth that an order that independent G tortfeasors meet an award jointly and severally was unwarranted.

The court of appeal also considered the scope of licence given to sungusungu by the sungusungu legislation, the effect of death of principal, who has appointed an agent for purposes of court proceedings, and the date when assessment of compensation should be made. H

Held:(i) In principle no particular form of words is requisite in alleging conversion provided the fact of conversion is sufficiently stated. The allegation may take the form of either direct averments I

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A of a conversion or statements of fact from which a conversion may be legally inferred;

(ii) the evidence of the plaintiff should first have been pitted and balanced against that of the defendants before making a finding of torture;

B (iii)while asportation of goods out of the possession of anyone else, for the use of the defendants or a third person, in exclusion or defiance of the owner's right, amounts to conversion by taking, possession of the converted goods constitutes conversion by detention;

C (iv) after consideration and evaluation of the evidence there was no cogent evidence that in taking the animals the sungusungu group were directed or instigated or in any manner induced by the first and second appellants;

(v) except for the 2nd appellant, all the rest to whom the animals were distributed committed the tort of conversion by detention;

D (vi) since the appellants were independent tortfeasors the order requiring them to meet the award jointly and severally was unwarranted;

(vii) sungusungu legislation do not give and have never given license to such groups to dehumanize people E or procure confessions by torture;

(viii) the assessment of the pecuniary value should have a reference to the date of conversion and not to the date of judgment;

(ix) authority given to an agent under Order 3 rules 1 and 2 of the Civil Procedure Code, 1966 lapsed as F soon as the principal died.

Case Information

Appeal dismissed.

Fimbo, for the appellants

G Ntabaye, for the respondents.

[zJDz]Judgment

Omar and Ramadhani, JJ. A. and Mapigano, Ag. J.A.: This is an appeal from the judgment of the High Court at Tabora (Chipeta, J.) delivered on January 29, 1988, by which the appellants were jointly severally adjudged H liable to return 305 head of cattle and 2 goats to the respondent Dima Nhorongo, or pay him their pecuniary equivalent, and to meet the costs of the suit. In this judgment I will, where I deem suitable, retain the personal names or descriptions of the parties that they bear in the record of the High Court. The appellants are represented I by Professor Fimbo, learned advocate, of the University of Dar es Salaam's Legal Aid Committee, while

the respondent is, like he was in the High Court, represented by Mr. Ntabaye, learned advocate. A

The plaint was drawn by Mr. Ntabaye and presented on January 1, 1985. The key paragraphs were 3, 5 and 7. In paragraph 3 the plaintiff, now the respondent, stated that in December, 1982 a group of people known as Sungusungu invaded his homestead at Udongo Village, Sikonge Ward in Tabora District and drove as was his B 316 head of cattle and 2 goats, after torturing him, and that the animals were soon enough distributed to the defendants. In paragraph 5 he stated that the defendants had no colour of right over the animals. And in paragraph 7 he stated that none of the animals in question had been returned to him despite several demands. The C principal relief claimed by the plaintiff was the return of the animals.

In their joint amended Written Statement, drawn by the Tanzania Legal Corporation and presented on May 15, 1985, the defendants denied, vide paragraph 2, that a group of Sungusungu invaded the homestead of the plaintiff D and drove away any animal. They claimed that at a certain meeting held at Ipolo the plaintiff made a free and voluntary confession that he had stolen various numbers of cattle from seven of the eleven defendants and also poisoned 3 head of cattle and 2 goats belonging to the first defendant Imeri Maleva resulting into their deaths. E They also claimed, vide paragraph 3, that he voluntarily offered to return the stolen animals to their respective owners or compensate them in kind, and that he signed both the confession and the offer. They further claimed, vide paragraph 4, that pursuant to the said confession and offer the plaintiff willingly rendered 171 head of cattle F and 2 goats to the eight defendants. Wherefore the defendants prayed for the dismissed of the suit and for costs.

As I said a moment ago, the Written Statement was drawn and filed by the Tanzania Legal Corporation. Mr. Lukwaro, learned counsel of that Corporation, appeared on behalf of the defendants in the High Court. G

It later came to the knowledge of the High Court that the 9th defendant Simon Falasila had actually passed away before the institution of the suit and the learned judge struck out the suit as it related to him, and I think that was a H thoroughly proper thing to do. According to the Written Statement, the plaintiff had admitted to have stolen 16 cows from Simon Falasila and had returned the cattle to the deceased. I

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A Four issues were drawn and recorded, namely:

1. Whether the number of cattle collected from the plaintiff was 316 or 171.
2. Whether the cattle were given voluntarily by the plaintiff or not.

B 3. Whether the plaintiff admitted the alleged thefts and offered to return allegedly stolen cattle.

4. What remedy or remedies are the parties entitled to.

C In this judgment the trial judge found that 305 head of cattle and 2 goats were collected from the plaintiff. He stated that he accepted the testimony of PW.2 Jisandu Dima and son of the plaintiff.

According to the account of P.W.2, the animals were collected by some Sungusungu vigilantes on four occasions. D On the first occasion, when the plaintiff was absent, having travelled to Igunga, 9 heads of cattle were taken away. On the second, third and fourth occasions 280 head of cattle plus 2 goats, 16 heads of cattle, and 11 head of cattle were, respectively, collected by Sungusungu.

E The defendants, as pointed out, admitted receiving some of the animals, as follows: first defendant Imeri Maleva - 3 head of cattle and 2 goats; fourth defendant Sayi Kadala - 9 head of cattle, fifth defendant Andrea Mgagani - 79 head of cattle; sixth defendant Matwiga Gaga - 8 head of cattle; seventh defendant Shija Auganga - 25 head of F cattle, eighth defendant Yunge Ndaki - 9 head of cattle; and eleventh defendant Kasanga Tumbo - 18 head of cattle. There was evidence that the tenth defendant Dasu Madigija, who died during the pendent of the suit, had received 16 head of cattle.

G For my part I am quite satisfied that the judge was entitled to rely on P.W.2. Only that he made an obvious arithmetical slip as to the total number of cattle collected by Sungusungu. The figures 9,280, 16 and 11 certainly add up to 316 and not 305. I would uphold the decision of the High Court on this point save as just indicated.

H As there was a large measure of untimely between the second and third issues, they admitted of being taken together and, the judge did precisely that. They were the bones of serious contention and a good deal of the arguments in the High Court and in this Court was directed to them.

I The plaintiff denied that he voluntarily and willingly offered to surrender the animals. He admitted making a confession that he had stolen cattle from the eight defendants, but claimed that he did

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so after experiencing extreme torture at the hands of Sungusungu and in order to save his life, and that the said A confession was absolutely false.

His narration of the torture was a lurid one: He was abased and tortured for two days consecutively. On the first day he was forced to take off his clothes in full view of the crowd. Next he was hustled away to a place called B Kiwanda (i.e. factory) where he was physically tortured and forced to admit that he had stolen cattle. So Kiwanda bears a perverted meaning. He gave in and made a false confession. On the following day he was first roughed up and later shot on the head with an arrow. If this be true and if in fact he had already made a C confession, that assault was wanton and cruel, even sadistic. He fell down and lost consciousness. Later he returned to his senses, and at that point his torturers had him eat human excrement, and that indeed was the most horrid aspect of his account. On being released he took his grievances to the police and thence to the hospital for treatment. It was clear from his evidence, however, that none of the defendants was a party to the actual torture. D

He denied that he had stolen any animal, pointing out that he has never been prosecuted for such an offence.

It was common ground that criminal proceedings were subsequently instituted in the district court against the first E defendant and four other persons, that is, Kidari, Kawawa, Fumiki and Makerege. The proceedings were, however, discontinued by or at the bidding or someone on high.

Almost without exception the defendants as well as their witnesses DW.6 Richard Noah Ng'ombeyapi, DW.9 F Sakwa Dotto and DW.10 Zololo Gambeshi, denounced the plaintiff as a notorious rustler. One, the eighth defendant Yunge Ndaki, who happened to be the elder brother of the plaintiff, told the Court that the plaintiff began rustling since when he was living at Igunga, that the plaintiff was originally called Noneka Ndaki, that Dima G Nhorongo is a nickname that was derived from such obnoxious enterprise, and that the plaintiff's moving to Ipole from Igunga was actually a flight from justice. There could be hardly any doubt that the relationship between the two brothers was rancorous. H

Their evidence showed that the plaintiff had been boycotted by his villagemates. The eleventh defendant, a fairly well-educated man with a sad political past, judging from his own testimony, was asked by the judge whether he approved ostracising a suspected rustler. He replied that he would not, but qualified his answer with the caustic I remark that "but it is the ends that justify the means",

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A and with that he wound up his testimony. As Professor Fimbo reminded us, that unscrupulous philosophical principle is said to have been openly espoused by Machiavel, a Medieval statesman and another.

B The first defendant who was described as a Sungusungu commander accused the plaintiff of having poisoned his 3 head of cattle and 2 goats. He did not see the plaintiff doing so. That is what he had just picked up second or third or fourth hand.

The third defendant, a member of Sungusungu, and his older brother the eleventh defendant, accused the plaintiff C of having stolen 18 branded head of cattle which belonged to the eleventh defendant. The two defendants alleged that the cattle were stolen on various occasions since 1973, the year the plaintiff came to settle at Udongo from Igunga. They alleged that reports about the thefts were made to the authorities but that nothing material came of those reports.

D The fourth defendant accused the plaintiff of theft of his 9 branded head of cattle, the incident taking place seven years back, i.e. in 1979. He said that he coursed the trail made by the animals, which trail led to the homestead of the plaintiff. He claimed that he reported to the police about the incident and that nothing was done by police.

E The fifth defendant, also a member of Sungusungu, accused the plaintiff of having robbed his branded 79 head of cattle on June 14, 1979, at about 10 a.m. His allegation was that the robbery took place in the pasturage and that his cattle-hand was shot with firearm and killed. He also alleged that he reported the incident to the police, F and that he subsequently traced some of the stolen animals: 9 head at the homestead of one Abdallah at Urambo; 1 head at the homestead of one Petero at Urambo; and 17 head at the homestead of one Karatasi at Ulyankulu. If G his evidence was true, the said Abdallah, Petero and Karatasi revealed to him that they had stolen the cattle at the instance of the plaintiff. He admitted that the plaintiff was not arrested in that connection, claiming that the police had intimated that they were "afraid of the Government to arrest him". This explanation was echoed and H underscored by the eleventh defendant who portrayed the plaintiff as "a leader of rustlers, a feared and very subtle man, with friends in high places".

The sixth defendant charged the plaintiff with having stolen his 8 head of cattle, branded, seven years back, i.e. in 1979. Like the others he had also made a report to police about that incident.

I The seventh defendant, also a Sungusungu, called that he lost 50 head of cattle and 35 goats in 1972 when he was residing at

Unjili village in Igunga. He said the cattle were branded. A

The eighth defendant stated that his 10 branded head of cattle were stolen six years back, i.e. 1980, and that he reported the incident to the police mentioning the plaintiff and DW. 10 Zololo Gambeshi as suspects, and that the police did nothing. As we shall see presently, the evidence of DW. 10 was supportive. B

The defence case showed, by and large, that at two meetings held at Ipole and Udongo and attended by the top leadership in the locality, the plaintiff was interrogated and that as a result of those interrogations he admitted having stolen the animals from the eight defendants. It is not quite clear who chaired the two meetings. C

The defence case also showed that the plaintiff offered to return the stolen animals to the defendants or to recompense them and that no oppression whatever was brought to bear on him. It further showed that the third defendant (on behalf of his brother the eleventh defendant) as well as the fourth, fifth, sixth and seventh defendants, D received the cattle at the Ipole

meeting, and that the eighth defendant received his at the Udongo meeting a few days later. It should be observed that the 171 head of cattle referred to in paragraphs 2 and 4 of the Written Statement did not include the 9 head that went to the eighth defendant. E

Furthermore, the defence case showed that all the cattle returned to these defendants, with the exception of the fifth defendant, still bore the respective brands of the defendants. As for the fifth defendants, he claimed that 16 head out of 79 he received were still bearing his brand. F

But there was conflict in the defence case as to who collected the animals from the homestead of the plaintiff. One hand some witnesses said that the animals were bought to the meetings by the plaintiff himself. On the other second defendant, who was the secretary of Sungusungu and whom the judge believe, stated that the animals G were collected by Jeshi la Sungusungu.

The evidence of Dw.9 and DW.10 touched on what took place at the Udongo meeting. The two witnesses joined the chorus of some of the defendants in claiming that the plaintiff did willingly and voluntarily confess to having stolen Yunge's cattle and that the plaintiff willingly and voluntarily offered to return the animals. More importantly, H the two witnesses testified as to their criminal dealings with the plaintiff and their accounts in that respect made quite curious reading.

DW.9's evidence relating to his dealing with the plaintiff may be summarized as follows: The plaintiff once I dispatched him and

A one Gulucha, who did not give evidence, to steal 1 head of cattle which belonged to one Gidoja, who also did not give evidence. The plaintiff had sold him a magical medicine for Shs. 3,000/=, asserting that the medicine could benefit him in two way, namely, to bear him wealth and to protect him against arrest. He went and stolen the B animal and then drove it to a cattle market at Sikonge. The medicine did not work, for he was apprehended by the owner of the animal. He was, however, pardoned and he went to the plaintiff to demand his money who refused the demand. Under cross-examination DW.9 faltered and divulged that he had been "taught", and it may C be noted that all this stuff had not been put to the plaintiff while he was testifying.

I turn to DW. 10. According to his story, some time in 1980 the plaintiff sent him off along with one change, the son of the plaintiff, and two other men who were strangers to him, to steal cattle from Yunge the eighth defendant. D The plaintiff had provided them with a medicine or charm which allegedly caused people to go to sleep, for which he paid a sum of Shs. 500/=. The four went and stole 10 head form Yunge and drove them to an auction-market with a view to selling the same. At dawn, on their way to the market, he chickened and fled. He claimed that E those were the very cattle that were returned to Yunge at the Udongo Meeting, implying that his partners in the theft had sent the cattle to the plaintiff.

Subsequent to his flight. Again, DW.10's allegation against the plaintiff was not put to the plaintiff when he was in the box.

F The judge accepted the evidence of P.W.2 that first 9 head of cattle were taken away by Sungusungu while the plaintiff was away and before the two meetings were held. He pointed

out that the evidence of PW.2 on that point was corroborated by that of the sixth defendant. He then expressed the view that piece of evidence "cast a dark G shadow on the defendants' wholesale claim that the plaintiff voluntarily handed over the cattle to the defendants after he had voluntarily confessed steeling cattle".

The judge found that the plaintiff was actually assaulted and wounded. He reached that finding after reviewing only H the plaintiff's case. Professor Fimbo has taken issue with approach, but I leave that for later.

Next the judge went on to review the defence case and to analyse the same. He then came to the following I findings: (1) that the plaintiff's account was substantially true; (2) that most of defendant's denials and allegations were total lies or fabrications; (3) that the plaintiff was brutalized and humiliated; (4) that the

plaintiff's confessions were not voluntarily made; and (5) that the plaintiff did not voluntarily give up possession of A the animals. These were his answers to the second and third issues, and he concluded by saying that "the animals were wrongly taken, wrongfully parted with, and wrongfully retained and such of the defendants as retained the animals or any of them and all those who were instrumental to the taking and retention of the same, are guilty of B the tort of conversion".

The judge was not in the least impressed by DW.9 and DW.10. He said, in effect, that the two witnesses had simply recited in Court what had been manufactured and fed to them. C

It was Professor Fimbo's suggestion that the tort of conversion was not part of the plaintiff's pleadings. but I think that this proposition is not well founded, notwithstanding Mr Ntabaye's contention in the High Court that the plaintiff was resting his case on "unjust enrichment". D

I entirely agree with Professor Fimbo that it was essential that the plaint should allege a conversion by the defendants. It should, however, be kept in mind that in principle no particular form of words is requisite in alleging conversion, provided the fact of conversion is sufficiently stated, and I underline the words "sufficiently stated". E The allegation may take the form of either direct averments of a conversion or statements of fact from which a conversion may be legally inferred, and I also underline the words "legally inferred". Accordingly, a mere misdescription of a claim by the plaintiff or his advocate is immaterial. The substance of the pleadings must be read F as a whole and kept in view.

As already mentioned, the kernel of the plaint lay in paragraphs 3,5 and 7. Reduced to their element those paragraphs alleged that the defendants willfully and wrongfully took his cattle by force or duress, or detained them willfully and wrongfully, and that he made demands on the defendants, for their return, who refused to do so. In G my opinion the allegation of conversion was legally implied by those averments.

The next and related point taken by Professor Fimbo was that no issue was drawn in relation to conversion. I have H also been unable to accept this argument. As shown, the defendants met the plaint by claiming in their Written Statement that they received the animals from the

plaintiff himself, that no force or inducement whatever was applied to the plaintiff, that the cattle were their property, and that the number given them was loss than the number I
1991 TLR p10
OMAR JJA, RAMADHANI JJA AND MAPIGANO Ag JA
A alleged in the plaint. The plaintiff's allegation of demand and refusal was not traversed and could not, therefore be an issue.
In my opinion issues recorded corresponded with the pleadings and essentially embraced the whole dispute in the suit, though another judge might have phrased them differently.
B With regard to the fourth issues, the judge, as mentioned at the outset, entered judgment for the plaintiff against the defendants for the return of 305 head of cattle and 2 goats, failing that, to pay the pecuniary value thereof, jointly and severally. But as I have already pointed out, if the judge believe PW.2, and if he was right in adjudging C the defendants joint-tortfeasers, a point I will recur to later, then the order should have been a return of 316 head and 2 goats.
I pause to consider the position of the tenth defendant Dasu Madigija, who is listed in the memorandum of appeal D as ninth defendant. Dasu Madigija died after the institution of the suit but before the hearing was concluded. This comes on page 98 of the record. He had, before he died, written a letter to the High Court, saying that he was too old to follow the Court proceedings and appointing the second defendant as his agent, which is permissible under E rules 1 and 2 of Order 3 of the Civil Procedure Code 1966.
In my firm view, the second defendant's authority lapsed as soon as the principal died. The plaintiff should have been advised to apply for the deceased's legal representative to be made a party in place of the deceased, if he F wanted to maintain the claim against the deceased, in terms of rule 4 of order 22. This being my view, I would hold that the continuation of the suit against the tenth defendant subsequent to his death was misconceived, and I would strike out those proceedings.
G I turn to the grounds put forward in the joint memorandum of appeal. I have noticed that some of the grounds of appeal are not far removed from one another, and that several are directed against the judge's findings as to the circumstances under which the plaintiff came to part with the animals and as to the legality or otherwise of the defendants appropriation of the animals.
H As aforementioned, the judge went along with the evidence of the plaintiff and held that the animals were willfully and wrongfully appropriated by the defendants, most of the animals after the plaintiff had been subjected to torture and a false confession extorted form him; and that the tort which the defendants committed in respect thereof was I conversion, though he did not particularize what sort of conversion.
1991 TLR p11
OMAR JJA, RAMADHANI JJA AND MAPIGANO Ag JA
As observed earlier, Professor Fimbo's complaint is that the finding of the judge in regard to the question of torture A was made before the judge had evaluated the evidence of the defendants. Learned counsel has asked this Court to appraise the evidence pertaining to that point and make its own finding, citing the case of Martha Michael Wejja v The Hon. A.G. and three others

[1982] T.L.R. 35 at 43. I will dispose of this matter right away. I think B that this is a fair and valid criticism. the evidence of the plaintiff should first have been pitted and balanced against that of the defendants before making a finding on that point. I have accepted counsel's invitation to appraise the evidence on that matter and make my own finding, an exercise which this Court is after all legally C obliged to carry out.

Professor Fimbo's second submission was that the judge failed to scrutinize the evidence given on behalf of the plaintiff. He pointed out what he considered to be material discrepancies and disparities in that evidences. D

The third point taken by Professor Fimbo was that the judge erred in dismissing the evidence of the defendants and their witnesses in a summary and blanket manner. It was his contention that the evidence in question established, E on balance, that plaintiff was not tortured, that his confession was not obtained by oppression, and that he willingly offered to return or refund the animals. It was also his contention that the evidence of D.W.9 and D.W.10 in particular established that the plaintiff had stolen and poisoned the animals of the defendants. F

Learned council accordingly contended that the judge erred in law in failing to hold that the defence of retaking animals had been successfully pleaded. If in fact the plaintiff had committed such thefts the defendants were legally entitled to retake the animals, and there was no need for them to go to the bother and expense of litigation to G remove them.

Professor Fimbo made reference to the unsavoury remark made by the eleventh defendant that "it is the ends that justify the means". He pointed out correctly, as demonstrated supra, that the remark was made in reply to a question put by the judge whether the defendant approved ostracizing a suspected rustler- and had no reference to H torture. Counsel has urged this Court to find that the decision of the judge upon the issue of torture may well have been coloured by that remark. I will also dispose of this matter straightaway.

I would dismiss counsel's apprehension as baseless. I have I

1991 TLR p12

OMAR JJA, RAMADHANI JJA AND MAPIGANO Ag JA

A noticed that the judge made reference to the remark only one in his judgment, and that is when he was recapitulating Mr. Ntabaye's final submissions. What's more, there is nothing in the judgment of the learned judge which shows, or tends to show, that the remark in question had any influence upon his mind.

B I will now proceed to decide Professor Fimbo's other points. What I deduce from the defence case is that the plaintiff committed several cattle thefts in a space of eight years, i.e. between 1972 and 1979, and what he had kept the stolen animals at his homestead. Like Mr Ntabayo I ask myself: Is it not against the human grain? And I C wonder whether even the Mafia does operate in such a daring manner. It is hard to believe.

It was also said that several reports were made to the police against the plaintiff but that no meaningful steps were ever taken by them. It is hard to believe that allegation. As pointed out, the plaintiff was depicted as a feared and D fearless character. The judge did not buy that story. The same with me.

It might very well be that the plaintiff had the ill-fame of being a rustler in that area, but there was, in the last analysis, nothing probative in the evidence of the defendants themselves that he had stolen their cattle. Probably it E was in anticipation of such finding that D.W. 9 and D.W.10 were brought forward.

The two witnesses, as mentioned above alleged that they were once induced by the plaintiff to commit cattle thefts. F I notice, however, that the allegations were not put to the plaintiff whilst he was in the box. As a rule the offence should have done so in order to give him the opportunity of deny or admitting the allegations, or of making any other explanation. Secondly, and more telling, was the disclosure of D.W.9 that he had been "taught". Thirdly, G there was the fact the plaintiff was a forsaken man and that the two witnesses were brought to court to give evidence against that backdrop. Robust common sense warns that it would have taken a witness of exceptional boldness to give objective evidence in an open court under such circumstances. I incline to the view that the H evidence of the two witnesses was a farrago of fanciful figments and shaved truths in the most part. I would therefore, hold that judge was justified to dismiss the accusations of theft that were levelled against the plaintiff.

With regard to the question of torture I am also of the view that the judge was entitled to find as he did. It is not I quite true that he summarily rejected the evidence given and led by the defendants. And it seems to me that the conflicts and disparities to which

Professor Fimbo alluded, if they were conflicts and disparities at all, were not material, and a court would be naive A if it were to expect the evidence to bear no such discrepancies.

Professor Fimbo would have this Court regard D.W.6., D.W.7 and D.W.8 as independent and credible witnesses. D.W.6 Richard Noah Ng'ombeyapi and D.W.7 Fabiano Mazanguli were, respectively, the chairman of Udongo B and Ipole, while D.W.8 Mrisho Karyube was the ward secretary of Chabutwa of which Ipole and Udongo were parts. These three witnesses denied that plaintiff was subjected to torture. I think, however, that there is some sustenance in Mr Ntabaye's submission that these witnesses being the top leaders in the locality and having C attended one or both meetings had apparent interests of their own to serve.

I find that the plaintiff was actually tortured. No self-respecting court would, in my view, have accepted a confusion obtained by such extreme violence. D

It would not be out of place at this juncture to say a few words about Sungusungu. It was pointed out by Professor Fimbo, with palpable diffidence, citing the people's Militia Laws (Misc. Amendments) Act, 1987 (No. 9/89), but without elaborating, that Sungusungu is an institution of law and order. That is correct. In the scheme E of that Act as read together with the Peoples Militia (Powers of Arrest) Act, 1975 (No.25/75), and the Peoples Militia (Compensation for Death or Injuries)) Act, 1973 (No.27/73), a traditional security group like Sungusungu has been accorded a formal legal status. Effective from June 12, 1989, such a group is a peoples militia and enjoys F the powers rights and benefits conferred on such militia by those legislation. All this is in accordance with the policy of deploying the general public to supplement the established forces in the arduous task of crime control.

There are, however, three observations which may be made about that legal status. The first, which is of G subordinate importance, is that previous to Act No. 9/89 there was no written law governing such security groups although their existence in certain places was well known. The second is that the statutory provisions cited above put members of such groups at par with police constables in relation to powers of arrest and dealing with criminal suspects. The third observation is that the law does not give, and had never given, licence to such groups to H dehumanize people or procure confessions by torture.

I am not one to deny that in certain areas where such groups have been established they have done laudable work in the detection I

A of crimes, apprehension of criminal elements and preserving and enforcing public order generally. The instant case, however, serves to illustrate all too well the possible and gross exesses that such groups may be tempted to indulge in when they operate outside the normal legal framework. It was imperative for the relevant organs of the B state, therefore, to ensure that these groups operate according to law.

The next point for determination is what kind of conversion was committed by the defendants and whether the trial C judge was right in holding that all the appellants committed the tort. Professor Fimbo submitted that conversion by taking was not pleaded against the defendants. Mr Ntabaye conceded that point, but he was quick to add that for the purpose of the plaint it was not necessary to do so, and I am disposed to accept that view-point.

D But it is plain that even the judge did not specify the kind of conversion that was committed. Professor Fimbo assigned some blame to the advocated who appeared in the High Court for rendering insufficient assistance to the judge, I think with some justification. In actual fact the arguments formulated for this Court by the advocates were E not so fully or carefully formulated for the High Court. And it was clear to me that some of the arguments in this Court had involved considerable research and industry.

Any asportation of goods out of the possession of anyone else, for the use of the defendant or a third person, in exclusion or in defiance of the owner's right, amounts to conversion by taking. In relation to all the defendants, F except the first and second, I share Professor Fimbo's view that there was no trace of evidence that they participated in the taking of the animals. By the plaintiff's own account, the animals were taken by a squad of Sungusungu composed of Kidari and persons other than the defendants.

G In relation to the first and second defendants Professor Fimbo has not quarrelled with the formulation of the judge which comes on page 132 of the record, to wit:

> Where a man voluntarily and actively takes part in promoting an unlawful seizure of another's property for the benefit of a H third party, such person is liable in tort as the third party, even if in the end such person should receive no material gain.

The judge was there dealing with Mr Lukwaro's submission that there was no cause of action against the second I defendant. He concluded by finding that there was one. However, as Professor

Fimbo has correctly pointed out, the judge just stopped there: he did not proceed to pronounce on whether he A considered the second defendant, let alone the first defendant, to have been a party to the taking, and it thus remains for this Court to decide the matter.
After consideration and evaluation of the evidence I have come to the conclusion that there was no cogent B evidence that in taking the animals Kidari and his group were directed or instigated or in any manner induced by the first and second defendants.
I then go to consider conversion by detention. Detention connotes possession. Now, on the pleadings and facts proved the second defendant was not in possession of any of the converted animals. If so, he could not be said to C have committed the wrong. Consequently, in relation to him the appeal should wholly succeed, and I would allow it with costs here and below.
As regards the other appellants there were, as mentioned, admissions that they were given some of the animals that were seized, as follows; first defendant - 3 head of cattle and 2 goats; third defendant - 18 head of cattle which D he received on behalf of and kept for his brother the eleventh defendant; sixth defendant - 8 head of cattle, seventh defendant - 25 head of cattle, and eighth defendant - 9 head of cattle. E
Mr Lukwaro did submit in the High Court that there was no causes of action against the eleventh defendant, on the ground that none of the cattle was found with him. The Judge rejected that submission and in any view properly so. At law a person can be charged with conversion of goods if he had an actual or constructive possession of F them at the time of the alleged conversion. On the facts proved the third and eleventh defendants were joint possession of the 18 head of cattle, the farmer's possession being actual and the letter's constructive.
We were pressed with the contention that the judge erred in failing to consider the issue of identity of the animals G the plaintiff claimed. Professor Fimbo laid great stress on the requirement that in such an action the property claimed must be specified and he relied on three authorities, in particular the old English case of Abington v Lipscomb [1841] 1 QB 776 at page 1330. He sought to draw a parallel between that case and the instant case. H
It seems to be an established rule that in an action of Trevor, the demand must be sufficiently definite and complete, and should not embrace more property than the owner is entitled to recover. It seems to be accepted, however, I that while the plaint must describe the property alleged to be converted with reasonable certainty, in

A order to appraise the defendant and the court of the property claimed, all that is required is that the property should be described which has much reasonable precision as the nature of the case will permit, and ordinarily a general description should suffice.
B In my opinion the plaintiff's description of the subject matters was in the circumstances quite sufficient and there appears to have been no misapprehension by the defendants throughout as to what the plaintiff was actually claiming. Abington's case does not stand in the way at all. There the defendant's father died seized of certain customary freeholds on which

heriots were payable to the plaintiff, as lord of the manor, upon the death of the C tenant. (Heriot is an incident to freehold tenure in England. I is the right of the lord of the manor to the best living beasts of the tenant of the manor dying seised of an estate inheritance and recoverable by seizure or distress. It has a marked tincture of feudalism.) The plaintiff was entitled to 5 such beasts, but overbearing as he apparently was, D he marked 7 claiming all as heriots, and left them in the possession of the defendant who was the owner up to the marking. The plaintiff afterwards demanded the 7 and the excessive demand was met by a flat refusal to give them up. The plaintiff then brought action of Trevor for the beasts.

E Against that action the defendant made a preliminary objection and moved to quash the action, contending that in the circumstances his refusal did not avail the plaintiff a causes of action.

F Denman, C J sustained the objection and nonsuited the plaintiff. His reasons: (a) the demand had reference to a seizure actually made of 7 beasts, when the plaintiff had only a right to seize 5; (b) even supposing that the demand and refusal amounted to a conversion of 5, still it was left uncertain which 5 he lawfully seized, because if he was entitled to the best beasts he should have formed a judgment and exercised the legal option as to which was G the best.

As I see it Abington's case did not lay down any absolute rule that a demand that is too large is by itself always fatal. It seems to me that each individual case should be decided on its own set of facts. And there are, in my H opinion, two points of material distinction between that case and the present one.

There was from the very beginning no dispute whatever that the plaintiff in Abington's case was entitled to only 5 beasts and not the number he claimed in his action. There was a dispute in this case to the number of cattle which I the plaintiff could recover from the defendants. More importantly, the problem in Abington's case was that it was by no means certain which 5 among the 7 the plaintiff

had chosen as the best. As the learned Chief Justice observed, there was no refusal of 5 but only a refusal of 7, for A the defendant had no means of giving 5, because, and more to the point, he had no legal right to select 5, and being unable to do so he was not bound to give up the 7. Obviously there was no question of making such choice in the instant case. B

In conclusion upon this point I would hold that conversion by detention was proven against the first, third, fourth, fifth, sixth, seventh, eighth and eleventh defendants in respect of the animals they said they received at the two meetings.

Finally I recur, as promised, to the order of the judge requiring the judgment-debtors to meet the award jointly and C severally, which meant that the judgment could be executed in full against any one of them. The order has been assailed by the appellants, vide the last ground in their memorandum, as unwarranted.

There is substance in that criticism. In my judgment it cannot be said with confidence, on the materials on record, D that the defendants were joint tortfeasors. All that happened, in my view, was a more concurrence of distinct acts of retention. In fairness to counsel for the

respondent I ought to mention that he readily conceded that he defendants were independent tortfeasors. I would allow this ground. That means, in my judgment, the defendants, E namely, the first, third (or eleventh), fourth, fifth, sixth, seventh and eighth defendants are liable separately to the extent of the number of animals each individuals retained, or their pecuniary value. F

There was a short discussions as to whether the assessment of the pecuniary value should have reference to the date of conversion or the date of judgment. I have been unable to find any helpful decision on that subject in this country. In England the authorities that are available to me are not unanimous; the weight of authority, though, is in G favour of the view that the value should be assessed at the date of conversion.

On my part I prefer the view to which Salmond on Torts seems to incline, namely, that if the property increases in value after the date of conversion and if the increase is not due to the act of the defendant but would have occurred H in my case, even had no conversion been committed, as when goods taken or detained have risen in value by reason of the fluctuation of the market, the plaintiff should recover it as special damages resulting from the conversion, in addition to the original value of the property, provided that the plaintiff does not bide his time after conversion so as to make his I

A demand when the market price is highest. But as always, such damages must be explicitly claimed on the pleadings and strictly proved.

In the present case it is undeniable that the Tanzania shilling has undergone several devaluation's and there has B been a sharp mark-up in the price of almost every marketable item since the time of conversion of the animals. The plaintiff's sticking-point, however is that there was no pleading in that respect, let alone any proof. Accordingly, the pecuniary value of the animals should, in my opinion, be based on their market price at the time of conversion.

C We were informed from the bar that the decree has been executed by the plaintiff in part and some of the defendants' animals attached as follows first defendant Imeri Maleve - 12 head of cattle plus 2 goats: third defendants Andrea Tumbo and his brother the eleventh defendant Kasanga Tumbo - 13 head of cattle: the fifth D defendant Andrea Mgagani - 59 head of cattle; the sixth defendant Matwiga Gaga - 16 head of cattle; the seventh defendant Shija Uganga - 10 head of cattle; and the eighth defendant Yunge Ndaki - 61 head of cattle.

E If that is the case, then, in my opinion, the plaintiff should return 9 head to the first defendant, 8 head to the sixth defendant, and 52 head to the eighth defendant, failing this, to pay the three defendants the pecuniary equivalent thereof at the date of seizure. The fourth, fifth and seventh defendants are liable to pay the plaintiff 9 head, 20 head, and 15 head, respectively, or the pecuniary equivalent thereof at the date of conversion.

F In the ultimate event I would uphold the judgment of the High Court, save as indicated above, and dismiss the appeal. I would make no order as to costs since the appellants have come to this Court in forma pauperis.

Appeal dismissed.

1991 TLR p19
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[zRPz]MASUMBUKO ATHUMAN v REPUBLIC 1991 TLR 19 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

31 January, 1991
Flynote
Criminal law - Causing death through reckless driving - What constitutes reckless driving. B
-Headnote
The appellant was charged with and convicted of causing death through reckless driving. The deceased was running across a lorry driven by the appellant. It was alleged by one prosecution witness that the appellant was C "driving at a high speed". There was no evidence on record that the appellant was driving at a high speed.
Held:(i) A court cannot convict a person of dangerous or careless driving when the finding of dangerous or D careless driving is based solely on opinion evidence about his speed where such opinion is arrived at on quite insufficient data - Daya v Republic [1964] E.A 529 followed;
(ii) P.W.I's statement that the appellant was "driving at a high speed" cannot suffice to prove the fact of speed. E
Case Information
Appeal allowed.
Mwampona, for the Republic. F
[zJDz]Judgment
Chipeta, J.: The appellant, Masumbuko Athuman, was charged before Kigoma District Court with the offence of causing death by dangerous driving contrary to sections 40(I) and 63 (a) of the Road Traffic Act. 1973. He was convicted as charged and was sentenced to two years imprisonment. He was further disqualified from driving for a G period of three years. He now appeals.
The evidence on record reveals that just before the accident, the deceased, who was a child, had been playing with one Almasi Juma (P.W.I) aged 14 years, some ten paces from Kigoma - Kasulu road. The deceased threw an orange peel at P.W.I, and when the latter tried to retaliate, the deceased ran away to go across the road, and as he H did so, a lorry which was being driven by the appellant knocked him. He died shortly afterwards from the injuries he received as a result of the accident.
The appellant stopped the motor vehicle a short distance (78 feet) from the point of impact and ran away for fear I of mob justice.
1991 TLR p20
CHIPETA, J

A There were two eye-witnesses: P.WI is the only one who said that the appellant was "driving at a high speed". P.W.2 never talked about the speed of the motor vehicle.
In his defence the appellant said that he saw the deceased from a distance of 12 to 15 paces.
B On the evidence on record, and as rightly pointed out by Mr Bilaro, learned state attorney, the speed at which the appellant was driving cannot be said to have been established. A court cannot convict a person of dangerous or careless driving when the finding of dangerous or careless driving is based solely on opinion evidence about his C speed where such opinion is arrived at on quite insufficient data. (See Daya v Republic, [1964] E.A 529).
In the present case, P.W.I simply said that the appellant was "driving at a high speed". That cannot suffice to prove the fact of speed.
D Was there, then, any other evidence to prove dangerous driving on the part of the appellant? As I understand the law, a conviction for careless or dangerous driving must be base on a finding of fact that the driver charged with the offence was guilty of some act or omission which was negligent and which was a departure from the E standard of driving expected of a reasonable prudent driver. The duty of drivers is to keep a reasonable look out for obstructions or traffic ahead in time to avoid a collision. But, as Law, J pointed out in the case of R. v Wallace, [1958] E.A 582, at page 585:
F The duty is keep a reasonable look-out, and not to have to anticipate unreasonable or dangerous behaviour on the part of other drivers.
G To put it differently, the offence of dangerous driving is not an absolute office but involves a finding of fault on the part of the driver. In other words, the test to be used is the objective test (See Mkwenye v Republic. [1973] LRT n. 50; and Khalif v Republic, [1973] E.A. 364). In the words of Onyiuke, J in the case of Pyarali v Republic [1971] E.A. 169, at page 171:
H .. if the manner of actual driving produces a situation, which viewed objectively, that is to say, which a reasonable man would consider dangerous then that driving is dangerous ...
I To put it in another way, when a driver who is in control of his vehicle, does an act which any reasonable person would
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say is a dangerous piece of driving or a dangerous manoeuvre, then that driving is dangerous. A
So, the mere fact that an accident has happened does not necessarily mean that a particular driver has driven dangerously. For instance, if a driver, through no fault of his own, is faced with a sudden emergency and, is taking B evasive action to avert an accident, collides with another vehicle or knocks down a pedestrian, such a driver cannot be said to be guilty of dangerous driving.
In the present case, the prosecution alleged that what constituted dangerous driving was that the appellant "drove recklessly faster on the said road". But, as pointed earlier, the evidence as to speed was no more than opinion C evidence based on insufficient data. From the evidence, it appears to me that the deceased tried to cross the road when the appellant's motor vehicle was already very near, and so the appellant was faced with a sudden D emergency through no fault of his own.

For these reasons, I respectfully agree with Mr Bilaro, learned state attorney that the appellant ought to have been given the benefit of the doubt. The appeal accordingly succeeds. The appellant's conviction is hereby quashed E and the sentence and order of disqualification are set aside. The appellant shall be released from custody forthwith unless otherwise lawfully held.
Appeal allowed. F
1991 TLR p21
G
[zRPz]SHABAN KHAMIS MLOO AND OTHERS v THE SUPERINTENDENT OF ZANZIBAR PRISONS AND ANOTHER 1991 TLR 21 (HC)

Court High Court of Tanzania - Zanzibar
Judge Hamid CJ

19 February, 1991
Flynote
Constitutional law - Preventive Detention - On grounds of peace and security - Whether Union matter. H
Constitutional law - Preventive Detention - Whether the Zanzibar Preventive Detention Decree No. 3 of 1964 is valid in view of the Preventive Detention Act, No. 60 of 1962 as amended by Act No. 2 of 1985 whose application has been extended to Zanzibar. I
1991 TLR p22
-Headnote
A This was an application for the issue of direction in the nature of habeas corpus made on behalf of the 5 applicants who were detained under the provisions of the Zanzibar Preventive Detention Decree No. 3 of 1964. The applicants were detained so that they would not disrupt peace and security. It was argued for the applicants B that detaining a person on grounds of security could only be ordered under the Preventive Detention Act. No. 60 of 1962 as amended by Act, No. 2 of 1985 by the President of the United Republic of Tanzania because peace and security are matters reserved for the Union.
C Held: (i) Since the list of Union matters in the constitution of the United Republic of Tanzania, 1977, does not include preventive detention power or preventive detention per se as a Union matter it means the President of D Zanzibar is empowered to order preventive detention in relation to non-Union matters pertaining to Zanzibar.

(ii) the position of the Zanzibar Preventive Detention Decree No. 30, 1964 in the light of Articles 65(4) and 64(3) of the Union Constitution is that that legislation is inconsistent with the Union Constitution in so far as matters E of defence and security are concerned and therefore it stands null and void to that extent alone;

(iii) since preventive detention on matters not related to defence and security is a non-Union matter only legislation passed by the Union Parliament legislating for Zanzibar on that subject would be inconsistent with F Articles 106(3) and 64(2) of the Union Constitution, 1977

as well as Article 7(1) of the Zanzibar Constitution, 1984, hence the extension to Zanzibar of the Union Preventive Detention Act No. 60 of 1962, as amended by Act No. 2 of 1985 is valid to the extent it relates to Union matters of defence and security only whereas the non-Union G aspect of it relating to Zanzibar is exercisable by the President of Zanzibar under the relevant Zanzibar legislation;

(iv) the mere fact that the Union Preventive Detention Act confers powers on the Union President and extends its applicability to Zanzibar as well as mainland Tanzania does not preclude the President of Zanzibar from H exercising similar powers on non-Union matters relating to Zanzibar;

(v) since the detention of the applicants was grounded on security matters which are Union matters it should have been carried out under the orders of the President of the United Republic of Tanzania pursuant to the I Preventive Detention Act. No. 60 of 1962 as amended by Act No. 2 of 1985;

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(vi) the detention of the applicants as carried out under the orders of the President of Zanzibar pursuant to A the Zanzibar Detention Decree No. 3 of 1964 is illegal.

Case Information

Application granted.

Lipiki, for applicants. B

Mtembei, for the respondents.

[zJDz]Judgment

Hamid CJ: This is a chamber application for the issue of directions in the nature of habeas corpus as provided for under section 361(b) of the Criminal Procedure Decree, Cap. 14, the Laws of Zanzibar, Revised Edition. The C application in this case which is supported by an affidavit has been filed in this court by J.L.P. Lipiki Esq., advocate, on behalf of five applicants namely, Shaban Khamis Mloo, Ali Haji Pandu, Soud Yussuf Mgeni, Mchano Khamis Ali and Juma Othman Juma whom it is alleged that between 23rd and 30th of June, 1990 have been D detained either without warrant and without being shown any detention order or without being informed the reasons for their detention. The applicants through their advocate, Mr Lipiki, have asked this Court to order Summons to E be issued to the Commissioner for the Institutions for the Rehabilitation of Offenders (Prisons) and the Attorney-General to be called upon to show cause why a writ of habeas corpus should not issue directed to them to have the bodies of the applicants be produced before this court and to show cause why they should not be forthwith released. F

In support of his application, Mr Lipiki, the Counsel for the applicants has advanced the following arguments:

(i)That the applicants were detained under the provisions of section 2 of the Zanzibar Preventive Detention Decree, No. 3 of G 1964 which is no longer operative on matters relating to security of Zanzibar which is part of the United Republic of Tanzania.

(ii)On the Union day, that is on 26th day of April, 11964, the Zanzibar Revolutionary Government surrendered some of its H affairs to what is now known as the Government of the United Republic of Tanzania and therefore those matters surrendered to the Union Government ceased to operate in Zanzibar and that the laws promulgated or adopted by the Parliament of the United Republic of Tanzania took their place. The affairs I

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HAMID CJ

A surrendered by the Revolutionary Government are listed in the First Schedule to the Constitution of the United Republic of Tanzania, 1977, which includes matters of defence and security.

B (iii)That the reason given in the order for the detention of the applicants which was signed by the President of Zanzibar and Chairman of the Revolutionary Council, is that the detention was intended to prevent the applicants from endangering C peace and security of Zanzibar by their acts of inciting the citizens of Zanzibar to disrupt the general elections of 1990.

(iv)That matters of Defence and Security are Union matters (in accordance with 1977 Union Constitution) and are governed D by the National Defence Act, No. 3 of 1970 respectively both of which have expressly stated that they shall apply to Tanzania Zanzibar as well as mainland Tanzania rendering the Zanzibar Preventive Detention Decree inapplicable.

E (v)That the detention of the applicants is illegal because the order for their detention was issued under the defunct Zanzibar Preventive Detention Decree, No. 3 of 1964 instead of the operative Preventive Detention Act, No. 60 of 1962 as amended F by the Preventive Detention (Amendment) Act, No. 2 of 1985 of the Union Government.

(vi)That the detention of the applicants is illegal because the purported detention order was not directed and signed by the G President of the United Republic of Tanzania or by any of the persons named in section 37(3) of the Constitution of the United Republic of Tanzania.

(viii)The detention of the applicants is illegal because the applicants were not informed in writing the grounds on which they H were being detained nor have their detention been gazetted as required under the provisions of the Preventive Detention Act, 1962 as amended by Act No. 2 of 1985.

I In countering the arguments advance by Mr. Lipiki on behalf of the applicants, Mr Mtembei an Attorney of the State appearing on behalf

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of both respondents argued that the detention of all applicants is legal on the following grounds: A

(i)That the applicants are detained vide a valid detention order signed by the President of Zanzibar and Chairman of the Revolutionary Council acting under the powers conferred upon him under section 2 of the Preventive Detention Decree, No. B 3 of 1964 which is still in force because it has neither been repealed by the Preventive Detention Act of the Union nor by any other law.

(ii)That the reason behind the detention of the applicants is the maintenance of peace and good order of Zanzibar which is C non-Union matter and therefore falls within the powers of the President of Zanzibar; and

(iii)That the provisions of the Constitution of the United Republic of Tanzania 1977, do not oust the powers of the President D of Zanzibar of detaining persons under the Preventive Detention legislation of Zanzibar on non-Union matters.

The arguments brought forward by Mr. Lipiki on behalf of the applicants can be summarized as follows: E

That the detention of the applicants is illegal because the detention order was issued under a defunct F Zanzibar Preventive Detention Decree, no. 3 of 1964 which is no longer operative on matters relating to Security of Zanzibar since Security matters are among Union matters listed in the First Schedule to the 1977 Constitution of United Republic; and finally the proper procedure for detaining persons under the Preventive G Detention Act (No. 60 of 1962 as amended by Act. No. 2 of 1985) was not followed as a result of which render the detention to be illegal.

It has been brought to the notice of this Court that two piece of legislation exist in Tanzania dealing with H preventive detention namely Preventive Detention Decree, No. 3 of 1964 of Zanzibar and Preventive Detention Act, No. 60 of 1962 amended by the Preventive Detention (Amendment) Act, No. 2 of 1985. While the Counsel for the applicants contends that the detention of the I

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HAMID CJ

A applicants having been carried out under the Zanzibar Preventive Detention Legislation is illegal on the grounds that the Zanzibar Preventive Detention legislation is defunct and that such detention should have properly been carried out under the orders of President of the United Republic pursuant to the procedure laid down under the B valid Union Preventive Detention Act, No. 60 of 1962, Mr. Mtembei, appearing on behalf of the Respondents contends that the applicants have been detained under the orders of President of Zanzibar acting under powers conferred upon him under section 2 of the Preventive Detention, No. 3 of 1964 and that the provisions of the C Constitution of the United Republic in no way oust the Powers of the President of Zanzibar of detaining persons under the Preventive Detention legislation of Zanzibar on non-Union matters. Therefore the arguments put forward (by both parties) call upon this Court to examine the following issues:

D (i) Whether the effect of extending the application of the (mainland) Preventive Detention Cat, No. 60 of 1962 (so as to make it applicable throughout the United Republic of Tanzania and upon such legislation conferring powers of preventive detention to the Union President) is to legally preclude the President of Zanzibar from exercising similar E powers in relation to non-Union matters pertaining to Zanzibar under the powers conferred upon him by the by the Zanzibar legislature.

F (ii) Whether the detention of applicants is not valid merely because it has been carried out under the 1964 Zanzibar legislation instead of the Preventive Detention Act, No. 60 of 1962 of the union as amended by Act No. 2 of 1985.

G Since the main arguments in this application are centered around the validity of the law empowering the President of Zanzibar to order preventive detention, and whereas it is a notable fact that all legislation find their validity from the Constitution, a quick postmortem of the 1977 Constitution of the United Republic and the 1984 H Constitution of Zanzibar is likely to present us with a possible solution to the problem at hand.

It has been emphasized by the Union Constitution in Articles 64(2) and 106(30 that legislative powers in respect of I all non-Union matters for Zanzibar are exclusively vested in the Zanzibar legislature. The two Articles are reproduced in their original Swahili version as follows:

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Article 64(2): A

Mamlaka yote ya kutunga Sheria katika Tanzania Zanzibar juu ya mambo yote yasiyo Mambo ya Muungano yatakua mikononi mwa Baraza la Wawakilishi.

Article 106(3): B

Madaraka yote ya kutunga Sheria katika Zanzibar juu ya mambo yote yasiyo Mambo ya Muungano yatakua mikononi mwa Baraza la Wawakilishi la Zanzibar.

It is worth also to note Article 64(1) which states: C

Mamlaka yote ya kutunga sheria juu ya mambo yote ya Muungano na pia juu ya mambo mengine yote yahusuyo Tanzania Bara, yatakua mikononi mwa Bunge.

Translated in English this Article would read that: D

Legislative powers in respect of all Union matters and all matters relating to Mainland Tanzania shall vest in the Union Parliament.

We might as well be wise to further look into Article 64(3) which reads: E

Article 64(3)

Endapo sheria yoyote iliyotungwa na Baraza la Wawakilishi inahusu jambo lolote katika Tanzania Zanzibar ambalo liko F chini ya mamlaka ya Bunge, Sheria hiyo itakua batili na itatenguka na pia endapo sheria yoyote iliyotungwa na Bunge inahusu jambo lolote ambalo liko chini ya mamlaka ya Baraza la Wawakilishi, sheria hiyo itakua batili na itatenguka. G

Put in English it would read that :

Any law enacted by the Zanzibar legislature in relation to Union matters which are reserved for the Union Parliament shall be null and void, so also any enacted by the Union Parliament on non-Union matters reserved for the Zanzibar legislature H shall likewise be of on effect.

Having gone through the above articles of the Union Constitution it is then upon us to see what is the position of the I Union Preventive

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A Detention Act in relation to the Union Constitution and then see what is the position of the Zanzibar's Preventive Detention Decree, No. 3 of 1964 vis-à-vis the same Constitution. In this view it is worth to go through Article 64(5) of the Union Constitution which states:

B Articles 64(5):

Bila ya kuathiri kutumika kwa katiba ya Zanzibar kwa mujibu wa Katiba hii kuhusu mambo yote ya Tanzania Zanzibar C yasiyo mambo ya Muungano, Katiba hii itakuwa na nguvu ya Sheria katika Jamhuri nzima ya Muungano na endapo Sheria nyingine yoyote itakiuka masharti yaliyomo katika Katiba hii, Katiba ndio itakuwa na nguvu, na Sheria hiyo nyingine, kwa kiasi inayokiuka Katiba, itakua batili.

D Put in English this provision would read that:

Without prejudice to the application of Zanzibar Constitution in relation to non-Union matters pertaining to Zanzibar, this E Constitution shall have the force of law throughout the United Republic and if any other law is inconsistent with this Constitution, this Constitution shall prevail and the other law shall to the extent of the inconsistency be void.

F The question before us now is are the two Preventive Detention legislation prevailing in the two parties to the Union or any one of these legislation inconsistent with the Constitution? If so how could they or any of them be viewed in terms of the provisions of Article 64(5) of the Union Constitution" In other words could any of them be G void in toto or to what extent could they or any of them be held to be valid?

There is no doubt that prior to the Union between Zanzibar and Tanganyika Zanzibar had its own Preventive Detention Decree, No. 3 of 1964.

H Section 2 of the said Preventive Detention Decree, No. 3 of 1964 stipulates:

Section 2. Where:

I (a) the President of Zanzibar is satisfied that any person is conducting himself so as to be dangerous to peace and good

order in any part of Zanzibar or is acting in a manner prejudicial to the defence of Zanzibar or the Security of the A Republic; or

(b) the President is satisfied that an order under this section is necessary to prevent any person acting in a manner prejudicialy to peace and good order in any part of Zanzibar, or to the defence of Zanzibar or the security of the B Republic,

the President may, by order under his hand direct the detention of that person. C

Section 1(2) - This act shall apply throughout the United Republic.

Section 2(1) stipulates:

Section 2(1): Where: D

(a) it is shown to the satisfaction of the President that any person is conducting himself so as to be dangerous to peace and good order in any part of the United Republic or is acting in a manner prejudicial to the defence of the United E Republic or the security of the State; or

(b) the President is satisfied that an order under this section is necessary to prevent any person acting in a manner prejudicial to peace and good order in any part of the United Republic, or to defence of the United Republic or F security of the State, the President may by order under his hand and the Public Seal, direct the detention of that person.

The two sections quoted are similar save for the fact that section 2 of Preventive Decree No. 3 of 1964 viewed as G it presently stands, empowers the President of Zanzibar to exercise preventive detention in Zanzibar when he is satisfied that a person conducts himself in such a way that he is likely to endanger peace and good order of Zanzibar, or behaving in a manner prejudicial to the defence of Zanzibar or the security of the Republic (Zanzibar), H while section 2 of the Union Preventive Detention Act. No. 60 of 1962 empowers the Union President to exercise similar powers for the purposes of maintenance of peace and good order in any part of the United Republic and also for the purpose of preventing any person from acting in a manner prejudicial to the defence of I the United Republic

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HAMID CJ

A or security of the State. It will be seen therefore, that whereas the President of Zanzibar under section 2 of the Zanzibar Preventive Detention Decree, 1964, can exercise preventive detention in relation to those persons who are in Zanzibar and whose behaviour is likely to compel the application of the said provisions. Section 2 of the B Union President to exercise similar powers throughout the United Republic.

Influenced by the notion that both Preventive Detention legislation are related to matters of defence and security, C which matters Zanzibar has surrendered to the Union Government after the April 26, 1964 Union of Zanzibar and Tanganyika to form the United Republic of Tanzania coupled with the amendment of the 1962 Preventive Detention Action of the mainland Tanzania by Act. No. 2 of 1985 making it also applicable to Zanzibar as well as D mainland Tanzania, the Counsel for the applicants, Mr. Lipiki contends that the Zanzibar Preventive Detention Decree is not applicable firstly because it relates to matters of defence and security which are Union matters and secondly because Act. No. 2 of 1985 extends the application of Preventive Detention Act. No. 60 of 1962 to E Zanzibar and since the Zanzibar legislation is an earlier one and was later followed by the 1985 legislation on the same matter, according to a legal maxim "leges posteriores priores contrarias abrogant" which means later laws abrogate prior contrary laws, then the Zanzibar Preventive Detention Decree, 1964 by implication is repealed by the Preventive Detention Act of the Union. In support of is contention Mr. Lipiki also cited the case of F Smith v Benabo [1937] 1 K.B.518 which states that it is a well settled rule of construction that if a later statute again describes an offence created by a previous one and imposes a different punishment, or varies the procedure, the earlier one is repealed by later statute.

G This Court agree with Mr. Lipiki, the counsel for applicants that the Preventive Detention Decree, No. 3 of 1964 of Zanzibar comprises matters relating to defence and security which at the same time the Parliament of the United Republic passed the Preventive Detention (Amendment) Act, No. 2 of 1985 extending the application of H the mainland Preventive

Detention Act. No. 60 of 1962 to Zanzibar as well as mainland. The immediate question that comes up is that with the extension of the application of the Union Preventive Detention Act. to Zanzibar without specifically providing for the repeal of the Zanzibar Preventive Detention legislation, and with the act of I conferring power, by the Union Preventive Detention Act, to the President of the Unite Republic,

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HAMID CJ

does this state of affairs necessarily preclude the President of Zanzibar from exercising similar powers conferred A by a legislation passed by the Zanzibar legislature on non-Union matters?

It is the view of this Court that by precluding the President of Zanzibar from exercising the preventive detention power under section 2 of the Preventive Detention Decree of Zanzibar on the grounds that such powers are B exercisable only by the President of the Unite Republic of Tanzania under the Union Preventive Detention Act would be tantamount to suggesting that Preventive Detection is a Union matter simply because as was contended by Mr. Lipiki, counsel of the applicants, defence and security are matters which are governed by the National C Security Act, No. 3 of 1970 and National Defence Act, No. 24 of 1966 both of which are Union legislation. I am of the strong view that it is erroneous to hold that both Preventive Detention legislation are solely related to matters pertaining to defence as security and that preventive detention is governed only by the National Security Act. (No. D 3 of 1970) and the National Defence Act (No. 24 of 1966) because an Indian case of H. Das v District Magistrate, Cuttak (1969) A.I.R.43, S.C. does to some extent provide a view contrary to the one put forward by the learned counsel for appellants. The facts of that case in so far as they are relevant to the present application E appear in the judgment of the Supreme Court given by Shah, J. at S.C. 43 where it is stated:

On December 15, 1967, the District Magistrate, Cuttak, served an order made in exercise of power under s.81(I)(a)(ii) of the F Preventive Detention Act (4 of 1950) directing the appellant to be detained on grounds that the appellant was acting in a manner prejudicial to the maintenance of public order by committing breach of public peace, indulging in illicit business in G opium, Ganja, Bhang, Country liquor, rioutous conduct, criminal intimidation and assault either by himself or through his relations, agents and associates as set out in the order. On December 19, 1967, the appellant filed a petition in the High Court of Orissa challenging the validity of the order of detention on the grounds, inter alia, that the order and the grounds in H support thereof served upon the appellant were written in English language which the appellant did not understand.

It is to be noted that the main grounds advanced by the appellant to I

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HAMID CJ

A challenge the detention related not to the reasons that led to his detention but rather related to lack of knowledge of the reasons for his detention since the order was in the English language which the appellant did not understand. The relevance of this case in the present matter is that it endeavours to show that there is a wider range of activities B that can prompt

the exercise of the powers of preventive detention than mere matters related to defence and security. It means therefore it is not correct to hold that preventive detention power is a Union matter which is exercisable only by the Union President, because as has been shown above, the exercise of such power may be C promoted by incidents or activities related to defence and security as well as matters outside the scope of defence and security which may include non-Union matters.

It is true as contended by the learned counsel for the applications that the Preventive Detention Decree, No. 3 of 1964 of Zanzibar was passed prior to the Union of Tanzania which event marked the surrender of certain D governmental functions by the Zanzibar Government to the Union Government. However the matters surrendered in accordance with the First Schedule to the Constitution are:

E (i) The Constitution and the Government of the United Republic;
(ii) External Affairs:
(iii) Defence;
F (iv) Police;
(v) Emergency Powers:
(vi) Citizenship;
(vii) Immigration;
(viii) External trade and borrowing;
G (ix) the Public Service of the United Republic;
(x) Income Tax, Corporation tax, Customs and exercise duties;
(xi) Harbours, Civil aviation and Posts and Telegraphs;
(xii) Currency, coinage and legal tender (including paper money, banks including savings banks) and banking; foreign H exchange and exchange control;
(xiii) Industrial licensing, statistics;
(xiv) Higher education;
I (xv) Mineral oil resources including petroleum, its hydrocarbons and natural gas;
(xvi) National Examination Board;

(xvii) Research; A
(xviii) Meteorology;
(xix) Statistics;
(xx) Court of Appeal of the United Republic of Tanzania.

Nowhere in this list of the Union matters is mentioned "peace and good order", "preventive detention" or B "detention power" as among the Union matters. Therefore to hold that preventive detention power is a Union matters, is to endevour to over stretch the list of the Union matters, hence there is no valid legal basis for such a holding. This court therefore dissociates itself from such a view, particularly when the word "power" in so far as C the Union matters are concerned has been used only in relation to the proclamation of emergency and such power has been bestowed on the President of the United Republic.

These arguments influence this Court to move away from the view held by the counsel for the applicants when he D asked this Court to hold that the Zanzibar Preventive Detention Decree has ceased to be of any effect firstly because it relates to matters of defence and security which are Union matters and secondly because by implication that legislation has been repealed by the Union Preventive Detention (Amendment) Act, No. 2 of 1985. With E regard to the relationship between the preventive detention and matters related to defence and security it has been made quite clear that preventive detention may also be ordered in cases other than those related to defence and security and which may not necessarily involve the application of the National Defence or and national Security F Acts at all. Indeed preventive detention may be carried out to prevent breaches of the peace and maintenance of good Government which is the main concern of every head of the executive, and this Court is of the view that it was never the intention of the Union Parliament to deprive the President of Zanzibar of the powers 'to clean his G house' on matters of non-Union application relating to Zanzibar. It would be ridiculous therefore to deprive the President of Zanzibar of the powers to take preventive measures towards those who disturb the peace in Zanzibar in relation to purely non-Union matters. I cannot and I am not prepared to hold that the Zanzibar H President should fold his arms and do nothing when peace is likely to be disturbed until such time the Union Presidential approval is obtained for detaining a person even on non-Union matters relating to Zanzibar. I

1991 TLR p34

HAMID CJ

A Given the unique nature of the Union between Zanzibar and Tanganyika, the draftsmen of both the Zanzibar Constitution, 1984 as well as the Union Constitution, 1977, did realize the possibility having either two inconsistent B legislation on the same matter or a legislation which is partly either inconsistent with another legislation with either of the two Constitutions. It is with this view that Article 64(5) of the Union Constitution, 1977 provides:

Without prejudice to the application of Zanzibar Constitution in relation to non-Union matters pertaining to Zanzibar, this C Constitution shall have the force of law throughout the United Republic and if any other law is inconsistent with this Constitution, this Constitution shall prevail and the other law shall to the extent of the inconsistency be void.

D Article 4 of the Zanzibar Constitution, 1984, carries a similar provision which states:

This Constitution is the Constitution of Zanzibar and shall have the force of law throughout Zanzibar and subject to Article E 80, if any other law is inconsistent with this. Constitution, this Constitution shall prevail and the other law shall to the extent of the inconsistency be void.

F Having seen that preventive detention may be prompted by matters relating to defence and security as well as matters outside the purview of defence and security, what then are the positions of the Preventive Detention Decree, No. 3 of 1964 of Zanzibar and the Union Preventive Detention Act, No. 60 of 1962 taking into account Articles 64(5) and 4 of the Union and Zanzibar Constitutions respectively. In encompassing Union matters, surely G the Zanzibar Preventive Detention Decree, No. 3 of 1964 is inconsistent with the Union Constitution in accordance with Article 64(5). It is important to note that Article 64(3) of the

Union Constitution stipulates that H any law enacted by the Zanzibar legislature in relation to the Union matters which are reserved for the Union Parliament shall be null and void, so also any law enacted by the Union Parliament on non-Union matters reserved for the Zanzibar legislature shall likewise be of no effect. The First Schedule to the Union Constitution, 1977, I provides us with the list of the Union matters. It means therefore, all matters which are not included in that list, are non-Union matters. And since that list does not include

preventive detention power or preventive detention per se as a Union matter, it means the President of Zanzibar is A empowered to order preventive detention in relation to non-Union matters pertaining to Zanzibar and therefore the position of the Zanzibar Preventive Detention Decree. No. 3 of 1964 in the light of Articles 65(4) and 64(3) of the Union Constitution is that, that legislation is inconsistent with the Union Constitution in so far as matters of B defence and security are concerned and it therefore stands null and void to that extent alone. The Zanzibar Preventive Detention Decree, No. 3 of 1964 remain a good law in all other non-Union matters relating to Zanzibar. It means therefore the President of Zanzibar is precluded from detaining any person under the Zanzibar Preventive C Detention Decree on the grounds of defence and security, but he may detain any person under that law on the grounds other than those of defence and security. This is so because the Parliament of the United Republic has no power to legislate for Zanzibar on non-Union matters and that only the Zanzibar legislature can legislate for D Zanzibar on non-Union matters as it has been emphasized in Articles 106(3) and 64(2) of the Union Constitution, 1977, and reiterated in Article 78(1) of the Zanzibar Constitution, 1984, all of which stipulate: E

> Legislative powers in respect of all non-Union matters for Zanzibar shall exclusively rest in the Zanzibar legislature.

Since preventive detention on matters not related to defence and security is non-Union matter any legislation F passed by the Union Parliament legislating for Zanzibar on that subject would be inconsistent with Articles 106(3) and 64(2) of the Union Constitution 1977 as well as Article 78(I) of the Zanzibar Constitution, 1984, hence the extension to Zanzibar of the Union Preventive Detention Act, No. 60 of 1962, as amended by Act No. 2 of 1985, G is valid to the extent it relates to the Union matters of defence and security only whereas the non-Union aspect of it relating to Zanzibar is exercisable by the President of Zanzibar under the relevant Zanzibar legislation. H

In the final analysis all this means in mattes related to internal affairs of Zanzibar not only that the President of Zanzibar is empowered to detain a person on the grounds other than those of defence and security but it is also the view of this court that only the President of Zanzibar is empowered to detain a person in Zanzibar in relation to I non-Union matters pertaining to Zanzibar

A pursuant to the Preventive Detention Decree, No. 3 of 1964 of Zanzibar, while the Union President under the powers conferred upon him under the Union Preventive Detention Act, No. 60 of 1962 as amended by Act. No. 2 of 1985, may detain any person for the maintenance of peace and good order in relation to non-Union matters B pertaining to mainland Tanzania as well as detaining any person throughout Tanzania (Zanzibar included) for the purpose of maintaining and preserving defence and security of United Republic. It is for this reason that I am inclined to hold the more fact that the Union Preventive Detention Act confers powers to the Union President and C extends its applicability to Zanzibar as well as mainland Tanzania does not oust the President of Zanzibar from exercising similar powers on non-Union matters relating to Zanzibar.

Having come to the conclusion that the President of Zanzibar can exercise powers of preventive detention on D non-Union matters in relation to Zanzibar only and that the Zanzibar Preventive Detention Decree No. 3 of 1964 is valid in so far as it relates to non-Union matters, could it be proper to hold that the detention of the applicant is legal under the law? This question could only get a proper answer if we examine the detention order as signed by E the then President of Zanzibar Idris Abdulwakil which is reproduced in full below:

HATI YA AMRI

F SHERIA YA KUWEKA WATU KIZUIZINI,

NM.3 YA 1964 (KIFUNGU CHA 2)

Kwa vile nimeridhika kuwa kwa mujibu wa kifungu cha 2 cha sheria ya kuweka watu kizuizini ya 1964 ni lazima itolewe G Amri ili Kuzuia vitendo vya watu nitaowataja hapa chini, vya Kuvuruga Usalama na Amani ya Nchi ya Zanzibar vya Kushiriki katika kuwachochea wananchi wavuruge Uchaguzi Mkuu wa Zanzibar wa 1990:

H KWA HIYO BASI, kwa mujibu wa mamlaka niliyopewa na Kifungu cha 2 cha Sheria ya Kuweka Watu Kizuizini ya 1964, MIMI IDRIS ABDUL WAKIL, RAIS WA ZANZIBAR na Mwenyekiti wa Baraza la Mapinduzi naamuru kuwa watu waliotajwa hapa chini:-

(i) Ali Haji Pandu;

I (ii) Shaaban Khamis Mloo;

(iii) Soud Yussuf Mgeni;

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HAMID CJ

(iv) Juma Othman Juma; A

(v) Machano Khamis Ali.

Wawekwe kizuizini katika Chuo cha Mafunzo kuanzia siku ya tarehe 3 June, 1990 hadi itakapoamuriwa vinginevyo.

Imetolewa chini ya mkono wangu tarehe 2 Julai, 1990, Zanzibar. B

Sg. (IDRISA ABDUL WAKIL)

RAIS WA ZANZIBAR NA

MWENYEKITI WA BARAZA LA MAPINDUZI. C

Kwa:

KAMISHNA

CHUO CHA MAFUNZO D
ZANZIBAR
Paragraph one reads "... Lazima itolewe Amri ili kuzuia vitendo vya watu niliowataja hapa chini vya kuvuruga Usalama na Amani....." E
Translated in English this passage would read:

.. it is necessary to make an order for the purpose of preventing the persons mentioned below from disrupting peace and security ..... (emphasis is added). F

Under the circumstances, there is no doubt that the detentions of the applicants in this case has been ordered on security grounds, and it being a matter reserved for the Union should have been left for the President of the United G Republic to make such orders. It is therefore held that such detention having been made by a person other than the President of the United by a person other than the President of the United Republic and having been prompted by security related matters should have been carried out under the orders of the President of the United H Republic pursuant to Preventive Detention Act, No. 60 of 1962 as amended by Act. No. 2 of 1985. Consequently I declare that the detention of the applicants as carried out under the orders of President of Zanzibar pursuant to the Zanzibar Preventive Detention Decree, No. 3 of 1964 as illegal. I
1991 TLR p38
HAMID CJ
A Order: Since the applicants are already in the enjoyment of their freedom no order for their release is made.
Order accordingly.
1991 TLR p38
C
[zRPz]RAJABU KADIMWA NG'ENI AND ANOTHER v IDDI ADAM 1991 TLR 38 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J

5 March, 1991
Flynote
D Civil Practice and Procedure - Appeal - Leave to appeal out of time - Chance of success of intended appeal.
-Headnote
This was an application for leave to appeal out of time. The delay was slight, about a week. The Court E considered the prospects of success of the intended appeal in order to grant the application or otherwise.
Held: Since the intended appeal has absolutely no chances of success the application must fail.
Case Information
F Application dismissed.

[zJDz]Judgment
Mwalusanya, J.: The two applicants viz. Rajabu s/o Kidimwa Ng'eni and Stephano s/o Singita are seeking leave G to appeal out of time to this court. The applicants was resisted in person by the respondent Iddi s/o Adam.
The delay was slight, just about a week or so. If that was the only factor to consider, I would have allowed the application. However in matters of this kind, the most important matter to consider is the prospects of success of the intended appeal.
H In the case at hand, I find that the intended appeal has absolutely no chances of success. It is clear from the evidence on record that the applicants decided to take the law in their own hands in order to punish an alleged thief - the father of the respondent. The father of the respondent was adjudged a cattle thief by a traditional court I 'Baraza la Jadi' and thereafter the cattle of the respondent were attached to compensate the one whose cattle were allegedly stolen.
1991 TLR p39
The trial court hold that the seizure was illegal and ordered the refund and some consequential damages. A
I am satisfied that the trial court was correct. Under our Constitution only a court of law can adjudge somebody to be a thief and award a compensation order. The traditional court (Baraza la Jadi) has no such jurisdiction. Therefore the attachment of the respondent's cattle was illegal. The trial court was right to make redress on the B wrong done by the Baraza la Jadi.
Since the intended appeal had no chance of success, this application must fail. It will be a waste of time to allow it. In the event, the application is dismissed with costs. C
Order accordingly.
1991 TLR p39
D
[zRPz]WARYOBA MACHAGE v REPUBLIC 1991 TLR 39 (HC)

Court Court of Appeal of Tanzania - Mwanza
Judge Sekule J

8 March, 1991 E
Flynote
Evidence - Identification - Parade mounted 4 years after the event - Whether reliable.
Criminal Practice and Procedure - Trial in absentia - When provisions of section 226 of the Criminal Procedure Act can F be invoked.
-Headnote
The appellant and another person were charged with the offence of robbery with violence four years after the event. Identification parade was mounted. The trial proceeded in the absence of one of the accused. The trial G court was satisfied with the reliability of the parade and convicted the appellant as charged. Although the other accused had not entered his plea the court proceeded to try him in absentia. On appeal the appellant denied that he was a party to

the commission of the offence. The court considered whether the identification parade mounted H four years after the event could be relied on. The propriety of trying the other accused in absentia even though he had not entered his plea was also examined.

Held: (i) The fact that P.W.I. did not take requisite and timely action leading to the immediate arrest of the bandits I who are alleged to

1991 TLR p40

SEKULE J

A have been identified is an indication that the purported identification was uncertain and unreliable;

(ii) the provision of section 226(I) of the Criminal Procedure Act, 1985 can only be invoked in a situation B in which an accused person has had an occasion or opportunity to appear in court after arraignment and had the charge read to him and his plea taken and thereafter a hearing date set for his case.

Case Information

Appeal allowed.

C Nasimire, for appellant.

Mapunda, for the republic.

-Headnote

Sekule, J: The appellant Warioba s/o Machage and Nyamhanda Machage were jointly charged in the District D Court of Musoma District at Musoma in Criminal Case No. 322 of 1990 with the offence of robbery with violence.

The appellant was the 1st accused on the change while Nyamhanga Machage was the 2nd accused at the trial.

E It was alleged in the particulars of the offence that on the 1st of November, 1986 at Sirori Simba village in Musoma District, Mara Region they jointly and together stole 21 heads of cattle, valued at Shs. 336,000/= the property of one Samwel s/o Waganda and that immediately before the said theft, they used guns to threaten one. Deogratias Kingi in order to obtain and retain the said heads of cattle. It would appear before the start of the trial, F the 2nd accused at the trial, absconded but the trial against him seems to have continued. And they were both subsequently found guilty as charged and the appellant was convicted accordingly. Conviction was not entered G against his co-accused. And the matter was forwarded to this Court for sentencing.

The brief background of the case is that at about 19 hrs. on the 1st of November 1986, six bandits armed with bows and arrows, pangas iron bars and guns invaded the home of PW1 Samwel Waganda. And went into the H cow shed and drove out 21 heads of cattle. They did that after threatening Deogratias Kingi - PW2, PW1's herdsman. They also took PW2 with him. They abandoned him much later in the course of their journey in a forest. He was in bad shape as he claims to have been severely beaten. He was rescued by the search party. I PW2 claims to have identified the appellant and the other accused at the trial in the group of the bandits.

Thereafter PW1 reported the matter to a Baraza la Jadi and it is

1991 TLR p41

SEKULE J

alleged the appellant and the other person were called before the Baraza and admitted to have participated in the A robbery and theft. They were then ordered to compensate the complainant - PW2 and 20 heads of cattle were later seized from them. However these heads of cattle were later returned to the appellant and his colleague according to PW2 the direction of the village Chairman. B

PW1 then later instituted Civil Case No. 83 of 1989 in the Kiagata Primary Court in respect of this matter. It would appear the case did not make any headway, and as a result he ultimately reported this incident to the police and on the 12th of June 1990, a criminal case which is the subject matter of this case was instituted in Court. C

The appellant denied at the trial as he does in his petition of appeal to have been partly to the commission of this offence.

The Republic was represented by Mr. Mapunda learned State Attorney. I have had opportunity to peruse and consider the evidence on record and Counsels' submission and I am inclined to agree with Mapunda learned State D Attorney that the crucial issue for determination in this case, was the question of identification of the appellant as having been a party to the commission of the offence.

The trial court was satisfied with the evidence of identification of the appellant. E

I have on my part carefully revisited this evidence, and I must say with respect, it was in my view far from being satisfactory. And it could not in my opinion be safely relied upon to found conviction.

The sequence of events with regard to how the matter was handled by PW1, eloquently speak in my view that the F alleged identification of the appellant and his colleague was found doubtful even to the people who wanted such evidence to be relied and acted upon.

The incident happened in 1986, and it took the complaint PW1, four years to report it to the Police and institution G of the criminal proceedings that are the subject matter of this appeal.

If PW2 had made that kind of positive and certain identification of the appellant in the group of bandits as he claimed in his testimony, he should have mentioned him and his colleague at the first opportunity, thus facilitating H their immediate arrest. But this never happened. And according to the evidence on record, after the incident, nothing happened until on the 26th of June 1987 when the appellant was first taken to a "Baraza la Jadi" where he denied the accusation. I

If the identification of the appellant, had been positive and certain

A could PW1 had dilly dallied in taking steps that would have led to the immediate arrest of the appellant and would he have taken that long to report and to seek the assistance of the Police in this matter.

I do not think so, particularly considering the fact that the bandit made away with all his stock.

B And the fact that he did not take the requisite and timely action leading to the immediate arrest of the bandits who are alleged to have been identified, is an indication in my view that the purported identification was uncertain, and unreliable.

C I am thus satisfied in my mind and as already observed the identification of the appellant as having been one of the perpetrators of this crime was unreliable and it would be most unsafe to uphold the conviction entered on that type of evidence. I thus agree with Mapunda learned State Attorney that the conviction in this case cannot be sustained.

D The appeal therefore succeeds and it is hereby allowed. The appellant is to be released forthwith unless otherwise lawfully held. The appellant's co-accused was convicted in his absence. I have noticed from the record of the trial Court that it dealt with this accused in accordance with provisions of section 226 of the Criminal E Procedure Act 1985.

I have however on a close scrutiny of the record of the trial Court noticed that this accused never made even a single appearance in Court from the start of the trial or from the time the charge was instituted in Court. He did not F therefore have even a single opportunity to plead to the charge that was leveled against him jointly with the appellant. It is only the appellant who pleaded to the change.

The Public Prosecutor is recorded to have made the following submission to the Court:

G P. Prosecutor:The case is for hearing. I tender a new charge sheet to join the present accused with another who is not in Court. New charge sheet read over and explained to the accused whopleads:

Accused:It is not true.

H UNPGN.

P. Prosecutor:Second accused is at large and all efforts to trace him have proved futile to date. I pray to proceed under I section 226 of the CPA as I have witnesses who have come from far. I pray for leave to prosecute the case.

1991 TLR p43

SEKULE J

Court:Prayer granted. A

And the joint trial started. Perhaps it may be convenient to set here the relevant parts of the provisions of section 226(1) of the Criminal Procedure Act:

226(1) If at the time or place to which the hearing or further hearing shall be adjourned, the accused person shall not B appear before the Court which shall have made the order of adjournment, it shall be lawful for such Court to proceed with the hearing or further hearing as if the accused were present.... C

I have considered this matter, and with respect, I am inclined to the view that this was wrong invocation of the provisions of section 226 of the Criminal Procedure Act, 1985. D

To my mind, those provisions can only be invoked in a situation whereby an accused person has had opportunity or occasion to appear in Court after arraignment and had the charge read to him and his plea taken and thereafter a hearing date set for his case. And then if he thereafter absconds and he does not appear in Court at the set E hearing day, the provisions of section 226 of the said Criminal Procedure Act, 1985 could be invoked.

This is the logical meaning, one could give to the words the hearing appearing in the first line in the provisions of section 226(1) before the words further hearing as even in the ordinary discharge of Court business in criminal F cases, as case is not set for hearing before an accused

person has had occasion to appear in Court after arrest. To interprete these provisions as the trial Court did in this case, would mean to open the possibility of trying in absentia people who are not even aware of the charges leveled against them, or/and people who are not of the G jurisdiction of courts of this country and have never been made aware of the charges confronting them as they have never been arraigned and have never made even a single appearance in Court. I am inclined to the view that this was not the intention of the provisions of section 226 of the Criminal Procedure Act. H

To my mind and as far as I can recollect, trials in absentia outside the scope of the provisions of section 226 of the Criminal Procedure Court are not permitted. As already said, since the appellant's co-accused had not made even a single appearance in Court and pleaded I

A to the charge, the provisions of section 226(1) in this case should not have been invoked.

And as efforts to track him down had proved futile and since the Public Prosecution wanted to proceed with the case, the proper cause that was open to him was to withdraw the charge against this particular accused and let the B case against the appellant alone to continue.

The trial against Nyamhanga Machage was therefore in my view illegal. It was null and void. As his case was C otherwise linked to the case of the appellant in this appeal and in the light of what I have observed with regard to the case of the appellant, I decline to make an order for retrial in respect of this fugitive accused and leave it to the prosecution to decide which course to take in the event he is subsequently arrested. As no formal conviction was D entered against this accused I will end here, otherwise using the powers of revision of this Court I would for the reasons set out above, have quashed such conviction.

The appeal of the appellant is allowed and the conviction is hereby quashed.

E The appellant is to be released forthwith unless otherwise lawfully held.

Appeal allowed.

F

[zRPz]A S SAJAN v COOPERATIVE AND RURAL DEVELOPMENT BANK 1991 TLR 44 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Makame JJA, Omar JJA and Ramadhani JJA

G 21 March, 1991

Flynote

Evidence - Leave to adduce additional evidence on appeal - Whether can be allowed.

H Contract - Damages - Measure of.

-Headnote

The appellant entered into a contract with the respondent to purchase a milling machine. He paid the price. Later he was informed the price of the machine had gone up and he paid the

balance of the price. Some years later the I respondent refunded to the appellant the whole amount of the money paid on the ground of non-

1991 TLR p45

availability of machines due to the failure to obtain foreign exchange with which to buy them. By the time the A respondent pulled out of the contact the price of a milling machine had more than trebled.

The appellant accepted the refund and sued for breach of contract claiming damages. The appellant who was not represented did not produce at the High Court two letters because of unfamiliarity with court procedures. He lost B the case in the High Court which held that the contract was frustrated due to impossibility of performance. The appellant sought leave to produce before the Court of Appeal the two letters he did not produce at the High Court.

He also maintained that the bank was to pay him such an amount of money as would enable him to purchase the C machine on the market.

Held: (i) Except on grounds of fraud or surprise the general rule is that an appellate court will not admit fresh evidence, unless it was not available to the part seeking to use it at the trial or that reasonable diligence would not D have made it so available;

(ii) since the appellant had during trial mentioned the contents of, particularly, the letter of 24/10/1984 it cannot be said that the two letters were "fresh evidence" or "additional evidence" rather they were documentary E evidence of what had been given orally; leave granted;

(iii) there is no evidence that the contract was on the condition of availability of foreign exchange;

(iv) the cardinal principle in awarding damages is 'restitutio in integrum' that is, the law will endeavour, F so far as money can do it, to place the injured person in the same situation as if the contract had been performed.

(v) 'Restitutio in integrum' dictates that the appellant be paid such sum of money as to purchase the milling machine. G

Case Information

Appeal allowed.

Kalunga, for the respondent.

[zJDz]Judgment

Ramadhani, Makame and Omar, JJ.A.: The appellant, Mr. A. S. Sajan, was the plaintiff in a suit which was H heard in the absence of the respondent, then the defendant, the Co-operative and Rural Development Bank. As the suit was dismissed by MAINA, J., and being aggrieved by that, the plaintiff now appeals to us. I

1991 TLR p46

RAMADHANI, MAKAME AND OMAR, JJA

A The appellant on or about 4th August, 1984 entered into a contract with the respondent whereby he was to buy a milling machine from the latter. Payments were made in three installments, the last one being on the 3rd August, 1985 which brought the total to some Shs. 92,036/=. On the 6th March, 1987 the respondent refunded the whole B amount of money to

the appellant on the grounds of non-availability of machine due to the failure to obtain foreign exchange with which to buy them. At the time the respondent pulled out of the contract the price of the milling machines had appreciated to Shs. 367,914/25. The appellant sued for the difference between the contract price C and the market price, that is Shs. 275,905/25, as damages.

As already said, the learned trial judge nonsuited the appellant because he found there was impossibility of D performance and that there was no proof that the respondent was merely unwilling to perform.

Before us the appellant appeared in person while the respondent was represented by Mr. Kalunga, learned Counsel.

The appellant told us that he had failed to secure an advocate and that he was going to prosecute the appeal in E person. He started by seeking our leave to produce two letters which he said were very important. Because of unfamiliarity with court procedures, he submitted, he did not produce them at the High Court. Mr. Kalunga objected to that on grounds that the appellant had ample time to do so in a hearing which was ex-parte.

F We decided to permit the appellant to produce the two letters and we now give our reasons. Rule 34 of the Tanzania Court of Appeal Rules, 1979 provides:

34 - (1) On any appeal from a decision of the High Court acting in the exercise of its original jurisdiction, the Court may-

G (a) ...

(b) in its discretion, for efficient reason, take additional evidence....

H The Court of Appeal for East Africa said in Karmali Tarmohamed v Lakhani & Coy [1958] E.A. 567 at 574. Except on grounds of fraud or surprise the general rule is that an appellate court will not admit fresh evidence, I unless it was not available to the party seeking to use it at the trial, or that reasonable diligence would not have made it so available.

1991 TLR p47

RAMADHANI, MAKAME AND OMAR, JJA

These two letters which the appellant is seeking to tender were in his possession at the time of hearing the suit and A in all other aspects they do not pass the foregoing test. However, on perusing the High Court file we have noted that the letter of 24/10/1984, particularly, had been mentioned and its contents had been given in the evidence of the appellant. Could it be said, then, that these letters are "fresh evidence" or "additional evidence"? We feel we B could not say so. Rather they were documentary evidence of what had been given orally. In fact the learned judge was supposed to assist the unrepresented plaintiff by asking him to produce the letters. So we did what ought to have been done. C

The appellant argued in the main appeal that the respondent had to perform the contract and not to refund the purchase money advanced. Mr. Kalunga, on the other hand, submitted that the purchase money has been refunded and that the appellant could not have his cake and eat it at the same time. The learned Counsel referred D us to Sec. 55 of the Sale of Goods Ordinance (Cap. 214) which provides for the recovery of money paid upon the failure of a consideration. He also cited Benjamin's Sale of Goods P. 673 paragraph 1341. Mr. Kalunga said that the learned

judge was right as the respondent did not have any machines to supply to the appellant. E Counsel argued that the availability of foreign exchange with which to buy the machine was condition of the contract.

There is no evidence to show that the contract was on the condition of the availability of foreign exchange. On the contrary, the appellant was made to believe that everything as well. The letter of 20th October, 1984 written by F the Regional Manager of the respondent to the appellant said:

> While we are arranging to transport the same grainmill to you we inform you that the price of the items have gone as G follows...

The appellant paid the difference which amounted to Shs. 2,036/= whereupon the Regional Manager wrote to the General Manager copied to the appellant on 28th October, 1984. He said: H

> Please consign his grainmill and hullet at your earliest.

The language used shows that the machines were readily available. So we find that there was no evidence to I support the view that the contract was conditional. Hence we find that there was a breach of

A contract. The consequences of a breach is not merely the refund of the money paid but damages. Section 55 of the Sale of Goods Ordinance, cited to us by Mr. Kalunga, provides:

> Nothing in this Ordinance shall affect the right of the buyer or the seller to recover interest or special damages in any case B where by law interest or special damages may be recoverable, or to recover money paid when the consideration for the payment of it has failed.

C That section does not make the recovery of money paid the only remedy. Again paragraph 1341 of Benjamin's sale of goods provides:

> Where, after the buyer has paid the price (or part of it) to the seller, the seller fails to deliver the goods.... hemay either sue D for damages, or for the restitution of the money paid to the seller.

Admittedly the appellant has been given back his money. The Written Statement of Defence in paragraph 8 alleges E that the appellant had requested the refund. A letter marked "A" was attached support of the allegation. That was a letter of 24th December, 1986 written by the appellant to the respondent. The appellant said, inter alia:

F Since initial payment was made over two years ago by July, 1985 full payment has been made, in the absence of supply of machines, you ought to pay the interest at the current Bank's rate, I propose to charge the rate from August, 1985, please let me know your comments.

G The appellant concluded "I therefore sincerely hope you would finalize this matter either to supply the machines or otherwise".

H There is nothing which supports the allegation that the appellant simply demanded a refund of his money. If anything he was demanding payment of interest for the period his money had been with the respondents. Thus the refund of the money was infact the manifestation of the breach of the contract by the respondents. The receipt by I the appellant of the money

refunded did not operate as a bar to a claim for damages because the refund would have been ordered in any case.
1991 TLR p49
The cardinal principle in awarding damages is 'restitutio in integrum', that is, the law will endeavour, so far as A money can do it, to place the injured person in the same situation as if the contract had been performed (The Cooper Motor Corp. Ltd v Moshi/Arusha Occupational Health Services Civil Appeal No. 1 of 1990 (unreported) citing Halsbury's Laws of England 3rd Ed. Vol. II p. 233 Paragraph 400). B
In the instant case if the contract had been performed the appellant would have had the machine. So 'restitutio in integrum' dictates that the appellant be paid such sum of money as to purchase the milling machines. The C appellant gave the price of such machine at the time of filing the suit as being Shs. 367,941/25. That was not controverted. Damages then are that amount less the refund, that is, Shs. 275,905/25. Costs here and below are also to be paid by the respondent. D
Appeal allowed.
1991 TLR p49
E
[zRPz]H L MWASANDENDE v MWANAISHA ABDALLAH AND ANOTHER 1991 TLR 49 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Bahati J

5 April, 1991 F
Flynote
Landlord and Tenant - Rent Restriction - Alternative accommodation - Distance factor.
Landlord and Tenant - Housing Appeal Tribunal - Matters not adjudicated upon by Regional Housing Tribunal - What Appeal Tribunal to do. G
-Headnote
The appellant applied for vacant possession of his house in the Regional Housing Tribunal. Two of his tenants resisted the application on the ground that no reasonably equivalent alternative accommodation had been offered H by the landlord. The landlord had offered alternative accommodation which was far away from the tenants' places of work.
The Regional Housing Tribunal granted the application. On appeal the Housing Appeals Tribunal reversed the I decision of the Regional Tribunal on the ground that no alternative accommodation
1991 TLR p50
A which was reasonably equivalent to the suit premises had been offered.
When hearing the appeal the Housing Appeals Tribunal found that the lower Tribunal had not answered some issues but did not remit them for resolution.

B Held: (i) No evidence was adduced to show that the alternative accommodation being offered was reasonably equivalent to the suit premises;

(ii)an accommodation which is far off from the tenants' place of work and requires one to walk five miles C to the nearest bus station cannot be said to be reasonably equivalent to the suit premises;

(iii) there is no requirement for an appellate tribunal to remit a matter to the lower tribunal just because some points were not adjudicated upon by the lower tribunal. Section 12(i)(r) of the Rent Restriction Act D empowers the Housing Appeals Tribunal to vary or rescind any order made under the provisions of section 12. That means that if the Regional Housing Tribunal has made any order, the Housing Appeals Tribunal can vary or rescind it.

Case Information

E Appeal dismissed.

Mwakasungula, for the appellant.

Lamwai, for the respondent.

[zJDz]Judgment

F Bahati, J.: This is an appeal by H.L. Mwasandondo against the judgment of the Housing Appeals Tribunal which quashed and set aside the judgment of the Regional Housing Tribunal.

The facts are that the appellant Mwasandondo applied before the Dar es Salaam Regional Housing Tribunal for G vacant possession of his house No. 20 Block 40 Kinondoni Area of Dar es Salaam City. The house was being occupied by four tenants. The tenants resisted the claim for vacant possession on the grounds that no reasonably equivalent alternative accommodation had been offered by the applicant landlord. Two tenants vacated the suit H premises voluntarily and only the two respondents Mwanaisha Abdallah and Jane Mbaga were left to resist the application. The Regional Housing Tribunal granted the application for vacant possession.

On appeal to the Housing Appeals Tribunal the decision of the Regional Housing Tribunal was reversed on the I grounds that no alternative accommodation which is reasonably equivalent to the suit premises had been offered. The Housing Appeals Tribunal argued

that even the distance from the alternative accommodation to the tenants' place of work and to the city centre was A factor to be taken into account in deciding whether such accommodation was reasonably equivalent to the suit premises.

In his memorandum of appeal, the appellant has set out 6 grounds of appeal. Mr. Mwakasangula, learned counsel B for the appellant, argued that the appellant had offered alternative accommodation of the same standard as the suit premises and where the appellant himself was living. But the respondents refused to accept the accommodation on flimsy grounds namely that the house was too far from the City Centre. He argued that this should not be allowed.

On ground No. 2, Mr Mwakasangula argued that the Tribunal erred in law and fact in narrowing down the C interpretation of "alternative accommodation" to correspond to a place near where

one works. He submitted that it would be impossible for landlords under such circumstances to find alternative accommodation. D

On ground No. 5, Mr. Mwakasangula submitted that the judgment of Tribunal went further, to state that because the appellant did not need the suit premises of this accommodation, the order for vacant possession was uncalled for. He argued that this point was not one of the issues. E

Finally Mr. Mwakasangula submitted that the Tribunal erred in not referring the matters to the Regional Housing Tribunal for adjudication. He argued that since the Housing Appeals Tribunal had held that some issues had not been answered, the proper cause was to remit the matter to the Regional Housing Tribunal for resolution of the F issues not answered.

In reply, Dr. Lamwai learned counsel for the respondents submitted that the appeal had no merits. He referred to section 25(l)(e)(i) and (ii) of the Rent Restriction Act in order to emphasize the requirement of providing G accommodation reasonably equivalent to the one at hand. He referred to the cases of Warren v Austen [1947] 2 All E.R.185 and Civil Case No. 29/89 - Parmar and another v Paul Maro and Civil Appeal No. 7 of 1989 - Dilip Parmar v Mohamed Sood which held that even amenities of the alternative accommodation matter and that H suitability of the alternative accommodation is important.

He argued further that the appellant failed to call evidence to prove that the alternative accommodation was reasonably equivalent. Therefore the Housing Appeal Tribunal was right in holding that the appellant failed to I discharge his duty under section 25 of the Act, he submitted. He elaborated further that whereas the suit premises

A were in Kinondoni within reach of the bus station, the alternative accommodation was at Ukonga five miles to the nearest bus station. He said that the alternative accommodation was far from being reasonably equivalent to the suit premises in view of the distance which the respondents would have to cover. He submitted further that the B appellant kept giving different reasons as to why he wanted the suit premises which showed that he was a liar.

As for ground No. 6, Dr. Lamwai submitted that the Housing Appeals Tribunal had the power under section 12(l)(r) of the Rent Restriction Act to vary or rescind any orders made by the Regional Housing Tribunal and that C there was no requirement for a retrial because the Housing Appeals Tribunal was convinced that the application in the Regional Housing Tribunal was not bona fide.

In a rejoinder to the above, Mr. Mwakasangula submitted that the appellant had supplied alternative D accommodation which was suitable in that he himself was living there and that he could not be expected to provide better accommodation. As for the distances, he submitted that the decisions of the Court of Appeal did not deal with the issues of distance and transport.

E With regard to the submission that the appellant had contradicted himself, Mr. Mwakasangula conceded that there was such contradiction. Finally he said that since the "reasonably equivalent" element had not been dealt with by the Regional Housing Tribunal, the case ought to have been remitted to the Regional Housing Tribunal for decision.

F I will commence with the last point raised by Mr. Mwakasangula about remitting the case back to the Regional Housing Tribunal so that the element of "reasonably equivalent" may be decided. I do not think, with respect to learned counsel, that is what section 12 of the Rent Restriction Act requires. Even in ordinary civil cases there is G no requirement for an appellate court to remit a matter to the lower court just because some points were not adjudicated upon by the lower court. The appellate court can certainly delay with the matter. In this appeal, the appellant adduced no evidence to establish that the alternative accommodation was reasonably equivalent to the H suit premises. He cannot be heard to complain about this deficiency and to ask that he be given an opportunity to lead evidence to that effect. Further more, section 12(i)(r) of the Rent Restriction Act empowers the Housing Appeals Tribunal to vary or rescind any order made under the provisions of this section i.e. section 12. That I means that if a Regional Housing Tribunal has made any order, the Housing Appeals Tribunal can vary it or rescind it.

1991 TLR p53

BAHATI J

The main thing in this appeal is whether the alternative accommodation which the appellant was offering to the A respondents was reasonably equivalent to the suit premises where they are staying. But before I deal with that point I will examine the reasons on the part of the appellant for requiring the suit premises. As conceded to by Mr. Mwakasungula, the appellant gave contradictory reasons for wishing to have the suit premises. But what B transpired as the truth was that the appellant wanted to exchange accommodation with the respondents so that he might occupy the suit premises and leave the respondents to occupy his current residence at Ukonga. The Housing Appeals Tribunal found that the appellant did not require the suit premises for his occupation as a residence. C Section 25(1)(e)(ii) states inter alia thus:

> in case of a dwelling house, it is reasonably required as a residence for himself... D

But the appellant already has a residence for himself. In such a situation can it be said that the suit premises are reasonably required as a residence for the appellant or occupation as a residence for himself or for his wife or children? I do not think so, and in any case there is no evidence to that effect. Therefore, even on the first limb of E paragraph (e)(i) this appeal crumbles.

As for alternative accommodation reasonably equivalent, I also agree with the learned Chairman of the Housing Appeals Tribunal that no evidence was adduced to show that the alternative accommodation being offered was F reasonably equivalent to the suit premises. Indeed the evidence establishes the opposite because the alternative accommodation is far off from the city centre and requires one to walk 5 miles to the nearest bus station. Such accommodation cannot be said to be reasonably equivalent to the suit premises. It was held in P.S. Parmer and G another v Paulo E. Maro - Civil Appeal No. 29 of 1989 (C.A.T. unreported) that here the suit premises were begin used for both residential and commercial purposes, alternative accommodation which cannot be used both for residential and commercial purposes cannot be reasonably equivalent to the suit premises. Going by the H reasoning in the just cited case, I have no difficulty in concluding that the alternative accommodation in this appeal which is as

described above cannot be said to be reasonably equivalent to the suit premises because the respondents would be put to great inconvenience as to their access to the places of work, I
1991 TLR p54
A more so for the second respond who would be put into further problems of walking for 5 kilometers to the nearest bus stop.
It follows, therefore, that not one out of the two requirements of paragraph (e) of section 25 (l) has been satisfied. B The appeal cannot succeed and it is dismissed with costs.
Appeal dismissed.
1991 TLR p54
C
[zRPz]TONGENI NAATA v REPUBLIC 1991 TLR 54 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Omar JJA, Ramadhani JJA and Mnzavas JJA

11 April, 1991
Flynote
D Criminal Practice and Procedure - Identification parade - Whether persons on the parade should be uniform - Police General Orders No. 231.
Criminal Practice and Procedure - Assessors - Right of an accused to object to an assessor - Effect of failure to give E accused opportunity to exercise the right.
-Headnote
The appellant, Tongeni Naata, was convicted of two counts of murder in the High Court at Arusha and was F accordingly sentenced to suffer death. The appellant was arrested based on a description given by Hawa d/o Issa (P.W.1) who also suffered serious bodily injury from the appellant during the same incident which led to the demise of the two deceased. PW1 was hospitalised. Subsequent to her hospitalisation an identification parade was G held whereat eight Masai youths were paraded past her bed one after another. Some had their hair plaited, others not.
P.W.1 succeeded in identifying the appellant as her assailant, although it was alleged that the appellant was first shown to PW1.
During the trial which led to the appellant's conviction and sentence to suffer death, the appellant was not invited H to object to the assessors.
Held: (i) The only serious allegation with respect to the identification parade was that P.W.1 saw the appellant just I before the parade, but the identification parade was not the sole basis for the conviction;
1991 TLR p55
RAMADHANI, OMAR AND MNZAVAS JJA
(ii) the persons on parade were required to look alike, but not to be uniform as to their hair style; A

(iii)it is a sound practice which has been followed, and should be followed, to give an opportunity to an accused to object to any assessor, however, the result of such omission cannot be the same in each case; B

(iv) merely making the omission a ground of appeal without showing how the appellant was prejudiced at the trial will not vitiate the proceedings.

Case Information

Appeal dismissed.

Bigeye, for the appellant. C

Mono, for the respondent.

[zJDz]Judgment

Ramadhani, Omar and Mnzavas, JJ.A.: On 27/7/86 Hawa d/o Issa (P.W.1), carrying on her back a young D daughter, Mariam d/o Richard, the second deceased, was in the company of Bakari s/o Mrimi, the first deceased, going from Njoro Village to Matui village. On the way they came across Tongeni Naata, the appellant, who was proceeding in the same direction to the Boma of Sokoine. After a brief chat the four set out together in a file with E P.W.l being at the front, the first deceased in the middle and the appellant in the rear. They went like that from about 1.00 p.m. to 5.00 when suddenly P.W.1 heard the first deceased complaining. As P.W.l turned around she saw the first deceased speared in the back. F

The appellant chased P.W.l who was about five paces in front of where the first deceased had fallen down. The appellant struck P.Wl with the bush knife (sime) which he had and as she was falling down, the appellant grabbed the second deceased off the back of P.W.l and slashed - off the left breast of P.W.1 who then fell down G unconscious. She regained consciousness the following day early in the morning when she was found by some Masais going to fetch water from the river. P.W.l explained to them her ordeal and gave them a description of the appellant. She was taken to hospital where on 5/8/86 she identified the appellant from among a group of eight H Masai youths who were paraded past her bed one after another.

The appellant was accordingly convicted of both murders and was sentenced to suffer death. He now appeals to us.

The appellant was advocated for by Miss Bigeye, learned counsel, who had three grounds of appeal. First it was I argued that the identification parade was irregular and defective. Second, the

A visual identification by P.W.l was said to have been not watertight and lastly that the appellant was not given and opportunity to object to any of the assessors.

As for the first ground Miss Begeye cited the case of Mwango Manaa v R. (1936) 3 E.A.C.A. 29 which laid out the procedure for the conduct of a proper identification parade.

B She argued that though that was a Kenyan case it had been followed with approval by the courts in Tanzania. The learned counsel pointed out three irregularities in the conduct of the parade. First, she recited what the appellant had said namely that he was first shown to P.W.l and then he was marched together with other seven C youths. Second, P.W.l said that she was

told by A.S.P. Kilio Ramadhani Dege (P.W.4), who conducted the parade, to point out the person who had killed her daughter and cut out her breast. Miss Bigeyo said that the D address should not have been in that way. She said that P.W.l should have been told that among the eight youths she was going to see her assailant might or might not be presented and them P.W.l should have been left to see if there was a person she recognised. The third irregularity that was pointed out by Miss Bigeye was that the eight E youths were not all looking alike as P.W.4 admitted that some of them did not have their hair plaited. The effect of these irregularities, Miss Bigeyo submitted was to vitiate the proceedings.

As for the second grounds challenging the visual identification of the appellant by P.W.l, Miss Bigeyo said that F though P.W.1 had been with the Masai youth who attacked her for about 4 hours, she never really had a good look at him since they were walking in a file with herself being at the forefront and the youth at the rear. Then, miss Bigeye added, that at the time of the incident things happened so fast that P.W.1 did not have an opportunity to G look at the youth closely to be able to identify him later.

In the last ground of appeal Miss Bigeye submitted that it is not a rule of law that an accused person is given an opportunity to object to a assessor yet it is a rule of practice. The appellant at the trial was not given such an H opportunity and, Miss Bigeye submitted, that was fatal.

On behalf of the Republic/Respondent was Mono, Senior State Attorney. As for the first ground of appeal Mr. Mono submitted that the parade was properly conducted. He said that the only serious allegation was that P.W.l I had seen the appellant before the parade was conducted. However, he argued, that was what the appellant alleged. On the other had P.W.4 had given a concise account of

what he did and that, Mr. Mono explained, was what actually happened. He further said that the identification A parade procedure is provided for in the Police General Orders (P.G.O). No. 231. Paragraph (q) thereof requires the officer conducting the parade to explain to the witnesses the purpose of the parade within the hearing of those on parade and then to invite the witness to point out by touching any persons he identifies. Mr. Mono B argued that in explaining the purpose of the parade the officer will have to go over what had happened to P.W.1 and that is exactly what Miss Bigeye complained against. Mr. Mono submitted then that no irregularity was done by P.W.4 in addressing P.W.1 in the way he had done. C

As for the visual identification of the appellant by P.W.1, Mr. Mono submitted that P.W.1 had all the reasons to remember the face of the appellant. Mr. Mono argued that the appellant had a chat with P.W.1 and the first deceased before they started their trip together and that the attack was in broad day light. Finally, Mr. Mono said D the parade itself was done only ten days after the incident when memory was still very fresh.

Mr. Mono conceded that it was a rule of practice to give an opportunity to an accused person to object to an assessor but argued that its omission was not fatal as it had not been shown that the omission occasioned any E injustice to the appellant.

We agree with Mr. Mono that the only serious allegation with respect to the identification parade was that of P.W.1 having had the sight of the appellant just before the parade. As for the other allegations they were not of F substance. We agree that here we have two versions of what happened: P.W.4 did not say that the appellant was shown to P.W.1 before the parade. Of course we are aware of the possibility that he would hardly have said so even if that had been the case. On the other hand, the appellant said that was what had been done. P.W. 4 was G not cross-examined on that just as the appellant too was not controverted. However the learned trial judge believed P.W.4 and we find no good reason to differ with her. But also, as we shall point out later, the identification parade was not the sole basis for the conviction. H

As for the other two points we agree that the requirements of P.G.O. No. 231 (q) would of necessity demand the conducting officer to say moreless what he had told P.W.1.

Secondly the persons on parade were required to look alike but not to be uniform as to their hair style. I

1991 TLR p58

RAMADHANI, OMAR AND MNZAVAS JJA

A We again agree with Mr. Mono and the learned trial judge that P.W.1 had a very good view of the appellant to be able to identify him. After all the appellant was apprehended because of the description P.W.1 gave to the people who rescued her the following morning. Then her identification was corroborated by Monica Sokoine B (P.W.2) who saw the appellant at their boma that fateful evening and that he was the only stranger there on that day.

The appellant had raised the defence of alibi. Mr. Mono withdrew, and properly so, his objection to that defence C since the appellant had given notice of it as required by section 194 of the C.P.A. The appellant claimed that he had been busy the whole of the fateful day building his boma at Matui and that he never left for any where. But the appellant did not bring any evidence to support his claim. This deliberate lie goes to support his identification by P.W.1 as submitted by Mr. Mono.

D As for the last ground of appeal it was held in Ndiragu Nyagu v R. [1959] E.A.75 that it is a sound practice which has been followed and should be followed to given an opportunity to an accused to object to any assessor. That was followed by this Court in the appeal of Samwel Ndonya v R. Criminal Appeal No. 76/1988 E (unreported). However, we added that the result of such omission cannot be the same in each case.

In that appeal we held that the omission did not prejudice the defence and that the error was curable under Rule 108 of the Tanzania Court of Appeal Rules, 1979. Our reasons were that though the appellant was represented F at the trial the court was not reminded of the practice. Then there were no allegations of misconduct or impropriety of any assessor. That is the situation in this appeal. The only difference is that here the omission has been made a ground of appeal while in Samwel Ndonya v R. it was not and that it was merely an afterthought. G But in our well considered opinion merely making the omission a ground of appeal without showing how the appellant was prejudiced at the trial will not vitiate the proceedings.

Before we conclude we wish to comment on sentencing in a case like this where an accused person is convicted of H two counts of murder. The learned trial judge merely said: "The accused is sentenced to death by hanging".

In Agnes Doris Liundi v R. [1980] T.L.R. 47 at 50 this Court said that in such a case:

I Sentence of death should only have been passed on one count,

1991 TLR p59

the convictions on the other two counts being allowed to remain in the record. We accordingly amend the sentence to refer A to the conviction on the first count only.

So the sentence should properly have read:

The accused is sentenced on the first count to suffer death by hanging. The conviction on the second count to remain on B record.

Apart from that the appeal is devoid of any merit and is dismissed in its entirety. C

Appeal dismissed.

1991 TLR p59

D

[zRPz]ALLY ATHUMANI v REPUBLIC 1991 TLR 59 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Masanche J

12 April, 1991 E

Flynote

Criminal Law - Defilement - Girl under fourteen - Proceedings and conviction assumed the offence of rape - Whether conviction can stand - Rape - Ingredients constituting rape - Defilement - Ingredients constituting defilement. F

-Headnote

This is an appeal originating from a conviction of defilement of a girl under the age of 14 years contrary to section 136(1) of the Penal Code. The entire proceedings give the impression that the Magistrate proceeded on the G assumption that the charge was one of rape contrary to sections 130 and 131 of the Penal Code.

Held: (i) The trial was a confused exercise, and cannot sustain the conviction entered;

(ii) rape and defilement are two entirely different offences, each one having its own ingredients requiring H proof;

(iii)while in rape consent, or lack of it must be proved, to make it rape or not, in defilement it is immaterial whether the girl consented or not. In defilement there must be proof of age.

Case Information

Conviction quashed. I

1991 TLR p60

A Mujuliki, for respondent.

[zJDz]Judgment

Masanche, J.: This is an appeal originating from a conviction on a charge of defilement of a girl under the age of B 14 years contrary to section 136(l) of the Penal Code. Surprisingly, however, of one reads the entire proceedings, one gets the impression that the magistrate preceded on assumption that the charge was one of rape contrary to sections 130 and 131 of the Penal Code, or in the alternative, the learned resident magistrate does not know that the offence of defilement is different from the offence of rape.

C So, that trial was a confused exercise, and certainly is the upshot I cannot support the conviction. What was the case?

The appellant Ally Athumani, on 17/7/89, at 7.00 p.m. approached the complainant, a young girl of apparent age D of 14 years (actually age was not ascertained) and requested her to accompany him to a secluded place for sexual intercourse. They walked to a lodging called Ngambo Lodge, but there they could not get a room for the exercise. They then moved to the house of the appellant. There, in the house of the appellant, they had sexual E intercourse. The appellant said they had sexual intercourse for half an hour while the girl said it took one hour. After the sexual intercourse, the appellant escorted her home. It was after she had arrived home that some elders noticed that the complainant had had sexual intercourse with a man.

F Appellant, in his testimony, did not deny having sexual intercourse with the complaint. His defence, according to him, is that that was his girl friend for a long time, and that was not the first time that they had gone out for sexual intercourse.

As I pointed out earlier on, the trial actually proceeded as if the charge laid at the door of the appellant was one of G rape. I say so because all the way the learned magistrate talked of consent, penetration, etc. And, indeed at times he even used the word rape.

Rape is defined in section 130 of the penal code. The section roads:

H 130 Any person who has unlawful carnal knowledge of a woman or girl, without her consent, or with her consent, if the consent is obtained by force or by means of threats or intimidation of any kind, or by fear of bodily harm, or by means of I false, representations as to the nature of the act, or in the case of a married woman, by personating her husband, is guilty of the felony termed "rape".

1991 TLR p61

MASANCHE J

Defilement is defined in section 136(1) of the Penal Code. It reads: A

36,(l) Any person who carnally knows any girl under the age of fourteen years is guilty of a felony, and is viable imprisonment for life, with or without corporal punishment.

The above are definitions of rape and defilement - the two being entirely two different offence; and indeed each B one of them has its own ingredients. For example for the offence of rape, there must be proved the following:

1. That there be carnal knowledge of a woman or girl (no age given); C
2. That the man forced such a woman to have the sexual intercourse. In other words, that there was no consent at all;

3. Or if there was consent at all, then the consent must have been obtained by tricky means or by threats or D intimidation or fear of bodily harm; or a misrepresentation of the actual act, or by posing as her husband.

Defilement, on the other hand has the following ingredients: E

1. There must be carnal knowledge.
2. The girl should be under the age of 14 years.

It will therefore be noted that while in rape, consent or lack of it must be proved to make it rape or not in F defilement it is immaterial whether the girl consented or not. And secondly, in defilement there must be proof of age.

In the case before us here, there was no proof of age at all. And it appears that this anomaly was seen by my brother Kyando, J. when he was perusing the file for admission, for he minuted: G

SDR(HC)

Admit to consider.

1. Whether the complainant was of 14 years of age or below; H
2. The legality of the sentence imposed, i.e. whether the trial magistrate had powers to impose a sentence of 10 years imprisonment.

The learned state attorney who appeared for the Republic in this appeal also seemed to have fallen into the same I pit as that of the

A learned resident magistrate. He also argued as if the offence was that of rape and went all out to consider whether there was consent or not whether there was corroboration of the complainant's testimony or not. In the end he settled down to arguing that the offence of defilement was proved.

B As I said, the offence of defilement had not been proved.

I allow the appeal in its totality. The conviction is quashed and the sentence is set aside. The appellant should be set free unless he is there again for some other matter.

C Appeal allowed.

D

[zRPz]FREITA WALTER AND 3 OTHERS v REPUBLIC 1991 TLR 62 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Kyando J

3 May, 1991
Flynote

E Criminal Practice and Procedure - Bail - Constitutionality of s. 148(4) Criminal Procedure Act - Validity of D.P.P.'s certificate barring bail.

Constitutional Law - S. 148 Criminal Procedure Act - Validity of D.P.P.'s certificate barring bail - Constitutionality thereof.

-Headnote

F In a trial for indecent assault the trial Resident Magistrate refused the applicants bail on the ground that their safety would be jeopardized.

On an application for bail to the High Court the D.P.P. filed a certificate pursuant to section 148(4) of the Criminal Procedure Act to bar the admission of the applicants to bail.

G The judge found that the contest was over the constitutionality of the provisions of s.148(4) and the validity of the D.P.P.'s certificate, matters which then were also pending before the Court of Appeal.

H Held: (i)As the issue on the validity of section 148(4) and the D.P.P.'s certificate is one of the issues for determination by the Court of Appeal in the pending case, it is prudent and a matter of good sense to await the I determination of the issue by the Court of Appeal.

1991 TLR p63

(ii) In the meantime, the D.P.P.'s certificate, issued under the provisions of S.148(4) holds sway and A operates to bar the release of the applicants on bail.

Case Information

Order accordingly. B

Bwahama, for the applicants.

Teemba, for the respondent.

[zJDz]Judgment

Kyando, J.: This is an application for bail-pending trial. The applicants, Freitag Walter, huber Waldermar, C Maurice Boutinon and Fritz Koch, who are indicated in the charge sheet to be all Europeans, face a Criminal charge in the District Court of Ilala, at Kisutu. The charge contains two counts of indecent assault. The first count alleges that the applicants, on or about the 1st of April, 1991, at 4.00 hours, at Mikocheni 'B', in Dar es Salam, D did unlawfully and indecently assault one Mariam Benson "by stripping her naked and facilitating their male dog to have sexual intercourse to the said Mariam Benson". The second count alleges assault by the applicants by photographing the scene alleged in the first count.

When they were brought before the Court below all the applicants pleaded by denying the truth of the allegations E contained in the charge. Then they applied to be released on bail pending trial. The application was refused. In his ruling refusing bail dated 11.4.91 the learned Magistrate who heard the application stated:

As I said two days ago, this offence is quite unusual. The DSM public has not forgotten it. That is why there are increased F security measures; that is why the accused had to be brought through my private entrance this afternoon. For their own safety, I remand them in custody. G

Following the above ruling they have now filed this application in this Court. they are all represented by Mr. Bwahama, learned advocate. Mr. Teemba, Principal State Attorney, appeared on behalf of the Director for public prosecutions at the hearing of the application in this Court. H

Soon after the application was filed here and soon after papers relating to it were served on the Director of Public Prosecutions (DPP), he (the DPP) filed a certificate -under s.148(4) of the Criminal procedure Act, 1985 (CPA), as amended. The Certificate States: I

1991 TLR p64
KYANDO J
A IN THE HIGH COURT OF TANZANIA
AT DAR ES SALAAM
MISC. CRIMINAL APPLICATION NO. 15 OF 1991
FREITAG WALTER
B HUBER WALDERMAR
MAURICE BOUTINON APPELLANTS (STC)
FRITZ KOCH
VERSUS
THE DIRECTOR OF PUBLIC
C PROSECUTIONS ..... RESPONDENT
(Original KISUTU RM's COURT CRIMINAL CASE NO. 630/91)
CERTIFICATE OF NON ADMISSION
D TO BAIL

(Made under section 148(4) of the Criminal Procedure Act., No. 9 of 1985, as amended by Act No. 10 of 1989) FREITA E WALTER & OTHERS v. REPUBLIC (Kyando, J.)

I ERNEST LAZARO KEMBELA MWIPOPO, The Director of Public Prosecutions in the United Republic in terms of section F 148(4) of the CPA as amended by Act. No. 10 of 1989 do hereby CERTIFY that 1. FREITAG WALTER, 2. HUBER WALDERMAR, 3. MAURICE BOUTINON AND 4. FRITZ KOCH charged with the offence of indecent assault c/s 135 (1) of G the Penal Code be Not admitted to bail pending trial as it is likely that the safety of the Republic would thereby be prejudiced. Dated at Dar es Salam this 25th day of April, 1991

(E.L.K. MWIPOPO)
H DIRECTOR OF PUBLIC PROSECUTIONS

Section 148(4) CPA, by virtue of which DPP issued his certificate provides:
I 148-(4) Notwithstanding anything in this section contained,
1991 TLR p65
KYANDO J

no police officer or court shall, after a person is arrested and while he is awaiting trial or appeal, admit that person to bail if A the Director of Public Prosecutions certifies in writing that it is likely that the safety or interests of the Republic would thereby be prejudiced.

There is also section 148(4A) which provides: B

148 - (4A) A certificate issued by the Director of Public Prosecution under this section shall take effect from the date it is filed in court or notified to the officer in charge of a police station, and shall remain in effect until the proceedings concerned are C concluded or the Director of Public Prosecutions withdraws it.

At the hearing of the applicant's application before me Mr. Teemba objected to bail, relying on the DPP's D certificate and the provisions of the law reproduced above. Mr. Bwahama countered by challenging the validity of the provisions in s. 148(4) CPA. He contended that these provisions are invalid vis à vis the constitution of the United Republic of Tanzania. He

said they have been so held and struck down in the now celebrated case of E Daudi s/o Pete v R., (HC) Misc. Criminal Cause No. 80 of 1989 (Mwanza Registry) (unreported). He prayed that I follow that case in this application and declare s. 148(4) CPA null and void for being in conflict with the constitution and disregard the Certificate filed by the DPP. F

Mr. Teemba replied by stating that whether a piece of legislation is in conflict with the constitution or not is a matter for parliament; he said it is Parliament which has the power to declare a statute null and void and not the Courts. He submitted therefore that I had no power to pronounce on the validity or otherwise of the provisions of S. 148(4) CPA. As to the case of Daudi s/o Pete v R. (Supra) he pointed out that the Republic has appealed G against the decision in that case and the matter is now in the Court of Appeal, the highest and final court in Tanzania, awaiting judgment.

I think with utmost respect, Mr. Teemba is mistaken in the view he holds, i.e. that this Court has no power to H declare a statute null and void and that it is only Parliament which has such power. For in all countries with written constitutions, as is the case with Tanzania, the constitution is supreme. It is the supreme or fundamental law of the land. If therefore any other legislation is inconsistent with the constitution, that other legislation is, to the I

1991 TLR p66

KYANDO J

A extent of the inconsistency, void. The responsibility for declaring such legislation void lies with the Courts of law. This is elementary and I hardly need to refer to any authorities. It suffices to point out that the principle was incorporated, e.g. in the Uganda constitution of 1966 (See Articles 1 and 87) and the Lesotho constitution of 1966 B (See Article 2). See also Article 30(3)-(4) of the Constitution of the United Republic of Tanzania, 1977.

It is elementary, too, that a decision of one judge of this Court (the High Court) does not bind another or other judges of this same Court. It is only decisions of the Court of Appeal which bind this Court. So, though it is good C policy that decisions of the same court should be consistent and unconflicting, I am, as a matter of principle, not bound to follow the decision in the case of Daudi s/o Pete v. R. which was relied on by Mr. Bwahama in attacking D the validity of the DPP's certificate and s.148 (4) CPA on which it (the certificate) is based. That decision was rendered by a judge of this Court. And to my knowledge, since that decision was rendered it has stood alone; no other judge in this Court has followed or supported it. In the case of Charles Mwakalinga v R., which Mr. E Bwahama also referred to, Bahati, J. did not seek to follow the decision in the Daudi s/o Pete Case. All that Bahati, J. , said in that case was that the District Court was bound by the decision in Pete's Case and acted correctly in feeling it was bound by decision in Pete's Case and acted correctly in feeling it was bound. This was, F of course, based on the cardinal principle that decisions of this court bind courts subordinate to it. Bahati, J., did not, as stated already, say that he was agreeing with the decision in Pete's Case and therefore that the lower court applied it correctly it terms of the merits of the decision in that Case (Pete's case).

G Mr Bwahama made several other points in his submissions both oral and written - in support of this application. In my view, however, and as Mr Teemba rightly pointed out, the crucial

point at this stage in the matter is the validity or otherwise of the provisions of s.148 (4) CPA and the DPP's Certificate filed on the basis of them, i.e. H the provisions. Fortunately, and as Mr. Teemba again rightly pointed out, the case of Daudi s/o Pete v R. on which Mr Bwahama relied in challenging the validity of the provisions and the certificate, is presently before the Court of Appeal for appeal purposes. To my knowledge the appeal has been heard already and it is only the I judgment which is pending delivery. The very issue of the validity or otherwise of s. 148(4) CPA is one of the issues for determination in that appeal. It would then, to my mind be prudent

and a matter of good sense to await the determination on the issue by Court of Appeal. I hold so. A

In the meantime, the DPP's Certificate, issued under the provisions of s.148(4) CPA holds sway and operates to bar the release of the applicants on bail. Bail is accordingly refused. B

Bail refused accordingly.

1991 TLR p67

C

[zRPz]JELA KALINGA v OMARI KARUMWANA 1991 TLR 67 (CA)

Court Court of Appeal of Tanzania - Mbeya
Judge Ramadhani JJA and Mnzavas JJA and Mapigano Ag JA

9 May, 1991 D

Flynote

Tort - Trepass to land - Plot in dispute issued to neither party - Whether in the circumstances trespass can be committed.

Tort - Trespass to land - Plot in dispute issued to neither party - One party in unlawful possession of the plot- Whether E unlawful possessor may maintain an action in trespass.

Tort - Trespass to land - Defences.

-Headnote

A person who was not allocated a plot of land sued a person who encroached upon it in trespass. The person F who sued entered into possession unlawfully. The person who was sued believed that the plot was his so after demolishing the structure put up by the other party he proceeded to erect a cottage thereon. The Court considered whether trespass could be committed in the circumstances and if so whether there were any defences open to the tortfeasor. G

Held: (i) Although in law neither of the two parties had a better title than the other, the foundation of an action for trespass to land is possession, and it is not necessary that the plaintiffs possession should be lawful; H

(ii) since Omari had actual possession before the demolition and the subsequent construction by Jela, Omari's action was proper.

(iii)one of the defences against an action for trespass is a claim by the defendant that he had a right to the possession of the land at the time of the alleged trespass or that he acted under the authority of some person having I such a right.

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Case Information

A Appeal dismissed.

Bateyunga, for appellant.

Mwangole, for the respondent.

[zJDz]Judgment

B Ramadhani and Mnzavas, JJ.A. and Mapigano, Ag. J.A.: This is the third appeal between the parties, the matter having started in Vwawa Urban Primary Court in Mbozi District. So for the sake of clarity and simplicity we shall refer to the parties by their first names rather than by appropriate legal labels.

C Omari Kalumwana unsuccessfully sued Jela Kalinga at the Primary Court for the repossession of a certain plot. Needless to say he was aggrieved and so appealed to the District Court of Mbozi where he succeeded. It was then the turn of Jela to go to the High Court at Mbeya to challenge that decision. However, he failed to persuade D Mtenga, J. and he thus lost again. But as his morale is high, Jela has finally come to us after obtaining a certificate from Mwaikasu, J. that there is a point of law at stake. Thus Omari was the original plaintiff while Jela was the original defendant. Now before us Omari is the respondent and Jela is the appellant.

E The facts of the matter are as simple as their issues are intertwined. The Regional CCM clecrations of the 5th February, 1985 were held in Mbozi District. The District Celebrations Committee identified the site on which to hold the festivities and decided that it should be fenced by building cottages all around to turn it into a stadium, so F to speak. The District Celebrations Committee, as would be expected, was under the chairmanship of the District Commissioner while the District Cultural Officer, one Nicodemus Mwankemwa (PW. 2), was its Secretary. A building Sub-Committee (hereinafter referred to as the sub-committee), whose composition was not G spelled out in evidence, was established and charged with the task of issuing out plots to interested persons for building cottages. Both Omari and Jela were allocated plots which were separated by an interspace. A public latrine was built on the interspace leaving passages on either side of the latrine. After the celebration were over it H was decided to block-up the passages. Omari was permitted by PW.2 to build a wall to connect his cottage to the side of the public latrine adjacent to him. When he was about to put up a roof he left for Dar es Salaam and, on his return, Omari found both the wall he had constructed and the public latrine demolished and Jela was in the I process of creating a new cottage thereon having being permitted to do so by both the district Land

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Officer, one Paul Nyalusi (DW.2), and the District Medical Officer called Senga Senga (DW.3). it was the same A DW.3 who had earlier on given a written authority to one Sadoki to

demolish the public latrine and the wall of Omari. Naturally, Omari confronted Jela who ignored his protests and proceeded with his construction work. That sent Omari to the Primary court, as said earlier, suing Jela for trespass. B

The point of law that was certified to us briefly was this:

Since the sub-committee was the one with the authority to allocate plots at the stadium and as neither Omari nor Jela C obtained possession of the plot in dispute from the sub-committee, could either one of them be said to have acquired a good title?

Mr. Batenyunga, learned Counsel for Jela, the appellant, presented a memorandum of appeal containing four D grounds of appeal The first ground was that the learned Judge erred to find Jela to be a trespasser as that issue could not arise in the circumstances of this case. The second ground was that the judge erred to declare Omari to have had a better title while there was a finding of a double allocation. The third ground was that the Judge erred E to have denied compensation to Jela on the ground that he was a trespasser. Lastly, that the Judge erred to have granted the plot to Omari while none of them had a better title because of the double allocation.

Mr. Bateyunga before us submitted that since the sub-committee did not allocate the plot to either Omari or Jela F then none of had good title. Therefore, the counsel argued, Omari had no right to sue Jela who could never be a trespasser. Mr. Bateyunga prayed that the decision of the Primary Court be restored.

On the other hand, Mr Mwangole, learned Counsel for Omari, the respondent, argued that there was no double G allocation as Omari was given the plot by PW. 2 on behalf of the sub-committee. On the contrary, the counsel submitted, Jela had no good title as both Dws. 2 and 3 no authority to issue plots. However, Mr Mwangole could not refer us to nay evidence to support his contention that PW. 2 issued the plot in dispute to Omari on behalf of H the sub-committee.

It was the finding of the lower Courts that the sub-committee was the proper authority to allocate plots at the stadium. It was equally settled that the said sub-committee did not issue the plot in dispute to any of the parties. I So we are of the same opinion that in

A law neither of the two had a better title than the other. But in such a situation can there not be trespass?

The foundation of an action for trespass to land is possession. It was decided in Delaney v T. P. Smith Ltd. B [1946] 2 All E.R 23 that to maintain trespass against a wrongdoer it is not necessary that the plaintiff's possession should be lawful. But that is not the case if the action is against the lawful owner. As there was no lawful owner in this case the question than is which of the two had possession, albeit unlawful, at the time of the dispute.

It has never been disputed at any stage that Omari had actual possession before the demolition and the subsequent C construction by Jela. The case of Thompson v Ward [1953] 1 All E.R 1169 supports the proposition that any one who was in possession or who is deemed to have been in possession at the time of the trespass could bring an action for trespass. so Omari's action was proper.

D However, one of the defences against an action for trespass is a claim by the defendant that he had a right to the possession of the land at the time of the alleged trespass or that he acted under the authority of some person having such a right (Halsbury's Law England 3rd. Ed. Vol. 38 at page 749 paragraph 1226). That has been the E defence of Jela. But as already shown he could not have such a right as DW.2 and DW.3 had no authority to giveit to him.

For the sake of completeness we may observe that it could have been argued, though it was not on behalf of Jela that he did not know that he was committing trespass or that he was misled by DW.2 and DW.3 into occupation. F That is very true. However, a person is liable for trespass if he acts voluntarily knowing the nature and the quality of his act even though he does not know the act to be wrongful (See Moriss v Marsden and Another [1952] 1 All E.R. 925).

G Thus we find that Omari had possession of the plot in dispute and that Jela committed trespass. So possession should be restored back to Omari as was the finding of both the District Court and the High Court.

H Mr. Bateyunga had prayed that in the event we came to the conclusion which we have arrived at, we then should consider awarding compensation to Jela. Mr Mwangole was bitterly opposed to that prayer but eventually he conceded. As there was no evidence as to how much money Jela had expanded on the structure we direct the I District Magistrate to take evidence from the parties and experts like the Government valuers to assess the cost of erecting the building in 1986. Interest on the amout from the date of judgment

by the District Court, that is the time when Jela was deposed, to the time of payment of the compensation should A be granted as well.

The appeal is dismissed except for compensation.

As the parties were not at fault but were misled into this litigation by other who then became on-lookers we order each party to bear his own costs. B

Before we finish, we may as well comment that Omari suffered some loss when the wall he had built was demolished. But that is a claim which could be brought against DW.3 who ordered the demolition and not Jela. C

Appeal dismissed.

D

[zRPz]AZIZI ABDALAH v REPUBLIC 1991 TLR 71 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Makame JJA, Ramadhani JJA and Mapigano Ag JA

16 May, 1991 E

Flynote

Evidence - Corroboration - Whether deficient, suspect or incredible evidence may be corroborated.

Criminal Practice and Procedure - Prosecution - Failure to call a witness - When an adverse inference may be drawn. F

-Headnote

The appellant was convicted by the High Court exercising its economic crimes jurisdiction on four counts charging attempted unlawful exportation of certain valuables. It was alleged that the appellant was acting in league with a G Lebanese called Nazeem who was also arrested but abused his bail. On appeal the appellant argued that the evidence of PW. 7 was suspect and could not be corroborated. In addition the appellant invited the court to draw an adverse inference against the prosecution for failure to call KLM witnesses. H

Held: (i) Since PW.7 was not worthy of belief his evidence could not be corroborated.

(ii) the purpose of corroboration is not to give validity or credence to evidence which is deficient or suspect I or incredible but

A only to confirm or support that which as evidence is sufficient and satisfactory and credible;

(iii) the general and well known rules is that the prosecutor is under a prima facie duty to call those witnesses who, from their connection with the transaction in question, are able to testify on material facts. If such B witnesses are within reach but are not called without sufficient reason being shown, the court may draw an inference adverse to the prosecution.

(iv) this was not a case which befitted the drawing of an adverse inference since the KLM plane took off C soon after Nazeem was nabbed.

Case information

Appeal dismissed.

Marando, for the appellant.

D Kamba, for the respondent.

[zJDz]Judgment

Mapigano, Ag. J.A., Makame and Ramadhani, JJ.A.: On July 20, 1990 at Dar es Salaam, the appellant Aziz Abdallah was convicted by the High Court (presided over by Lugakingira, J.) exercising its economic crimes E jurisdiction on four counts charging attempted unlawful exportation of certain valuables. The subject-matters of the charges were six kinds of notes which are legal tender in other territories, bills of exchange (US dollars in travellers cheques), gold and diamonds, whose certified total value was Shs. 36,021,788/70. He was sentenced to F imprisonment for a substantive term of twelve years, the Court taking a very serious view of the offence. He has appealed against the decision.

A Lebanese called Kazeem figures prominently in this case. The allegation was that Aziz was acting in league with G the said Kazeem who intended to smuggle out the moneys and the minerals in the evening of March 19, 1989. Kazeem had been in Dar es Salaam staying with his relatives who resided there and carried out certain business. He wanted to fly to Amsterdam on that evening on a KLM plane. He checked-in at the Dar es Salaam H International Airport (DIA) Terminal II at around 10.p.m. and he was the last passenger to do so. He had nothing in his hand except a passport and a jacket when he showed up at the customs checkpoint.

Aziz was a around when Nazeem was checked in and PW.5 inspector Mussa Halfani Mayagila was one of the I persons he exchanged greetings with. Aziz was a pilot with the Air Tanzania
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Corporation (ATC) and lived at Mindu in Dar es Salaam. He was off duty that evening but he had his identification A card with him, displayed on the breast of his shirt.
In due course Aziz left the checking-in hall and went upstairs where the departure lounges are situated. He had a black briefcase with him. A while later Nazeem was found in possession of a briefcase of the same colour, just B when the KLM plane was about to take off. That briefcase had not been checked by Customs. On suspicion Nazeem was apprehended and the briefcase seized. The briefcase was opened in the office of a customs officer, PW.7 Conrad Luyenga, thereby exposing the moneys and the minerals. C
Nazeem was taken into custody. The same with Aziz, on the ground that he had knowingly to a criminal enterprise and done an overt act for the purpose of enabling or aiding Nazeem to evade customs check and traffic the goods. Nazeem and Aziz were not strangers to each other, and according to Aziz, he had business dealings with D Nazeem's kinsmen in Dar es Salaam. Charges were later brought against the two but months later Nazeem abused his bail and went missing.
All the foregoing were not in dispute: the allegation was that the briefcase was passed on to him by Aziz, and that it was the very briefcase that Aziz was seen carrying from the checking-in hall. E
We now proceed to revisit the testimony of PW.7 who was the prime witness for the prosecution. He was one of the customs officers who checked-in the KLM passengers. The passengers then proceeded to the security and F immigration checkpoints and thence to the International Departure Lounge.
Nazeem was the last passenger to check-in and when PW.7 was through with him he noticed Aziz, whom he knew before, heading for the Domestic Departure Lounge upstairs carrying a briefcase, but Aziz said he was then going to the International Departure Lounge. He became curious because there was no more domestic flights in that G night. He approached PW.5 who was also on duty at the place and talked with him about Aziz. PW.5 told him that Aziz intended to travel to Kilimanjaro by a Fokker Friendship, and in his testimony PW.5 confirmed that Aziz H had told him so, a thing denied by Aziz.
A short moment later he saw Aziz heading for the KLM tube (which was also called gangway or bridge) still carrying the briefcase. The KLM passengers proceeded from the departure lounge to the plane through that tube. I This compounded his curiosity and he instantly set out to investigate what Aziz was up to. He went into
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A the tube using the outside stairs. Two DIA security officers, that is PW.2 Richard Martin and PW.3 Salehe Juma, followed him. It was around 10.15p.m. then.

When he went into the tube he came face to face with Aziz and Aziz who still had the briefcase saluted him, telling B him that he was waiting for a telex from an acquaintance. Aziz admitted that he met with PW.7 and saluted him but he denied that he still had the briefcase. He went and entered the plane, looked around and then came out. He found Aziz standing at a table, the briefcase lying thereon. When the High Court visited the scene PW.7 indicated C that the table in question was standing seven paces from the door of the plane. He walked on and met Nazeem who was being hurried along the tube to the plane by two KLM ground hostesses. He turned and followed Nazeen behind.

His suspicion was rendered valid. When Nazeem reached the table he stopped and exchanged farewells with Aziz D and at the same time Aziz handed over the briefcase to him, which was vehemently denied by Aziz. At that point he pounced upon the briefcase and stopped Nazeem from boarding the aircraft.

There were vain appeals made to him to let Nazeem board the place and proceed with his journey, Nazeem saying E that he was in a hurry and that he, PW.7, could talk with Aziz about the briefcase, and Aziz alleging that Nazeem's father had passed away in Lebanon.

The drama moved to his office downstairs wherein Nazeem eventually yielded and opened the briefcase. But that F was after Aziz had again pleaded with him to let Nazeem proceed with his journey and offered to go bail for Nazeem and even making a point of brandishing his identification card, and after PW.7 had stuck to his guns and insisted on the opening of the briefcase. This was confirmed by PW6. S.P. Placid Chaka, but denied by Aziz. G PW.6 added that at one point PW.7 called upon Aziz to disclose what was inside the briefcase "since it was he who had given the briefcase to Nazeem".

H That was the substance of PW.7's evidence. It is to be noted, however, that there was a striking inconsistency on his part in regard to the place where the exchange and seizure of the briefcase took place. It was not in dispute that in his first information report, exhibit D.3, he had first stated that Aziz passed on the briefcase to Nazeem at the door of the aircraft. He immediately then vacated that allegation and stated that the events took place deep inside I the aircraft. As shown above,in the witness-box he reverted to the story

he had retracted in exhibit D.3, and he hardly explained that turn-back. A

Nazeem and Aziz were detained at the DIA Police Station. On the following morning PW.5 who had not witnessed the seizure and the opening of the briefcase was surprised to find Aziz in the lock-up. He inquired of Aziz, rather quizzically, how came that he was there and not at the Kilimanjaro. Aziz replied that he too was B surprised and then broke down and wept.

The evidence of the two security officers PW.2 and PW.3 showed that they had just knocked off and were outside on the tarmac near where the KLM plane had taxied when PW.7 passed by walking with a fast pace and C ascended into the tube. They had been standing by a motor vehicle waiting for their other workmates so that the vehicle could ferry them home. Out of curiosity they decided to follow PW.7, PW.3 taking the lead.

When they stopped into the tube they saw a black briefcase lying on a table near the plane, a table which was D usually used by such airlines for their own checking. Aziz, whom they knew before, was standing nearby. He was dressed in full ATC uniform except for the cap and epaulette, again a thing denied by Aziz. Next Aziz asked PW.3 whether he had seen Yahaya (a DIA officer) and the answer was in the negative. Before long Nazeem came from E the direction of the departure lounge, and as he was about to embark the plane Aziz took the briefcase from the table and handed it over to him. Like PW.7, their curiosity was vindicated: PW.7 intervened and caught the briefcase. According to PW.3, PW.7 asked what was inside the briefcase and Nazeem and Aziz replied that there F was nothing, Aziz being the first to do so.

In his defence, Aziz stated that he went to the DIA that evening to see off an old friend, one Nassoro Khalifa Magogo, who was travelling to Dubai on an ATC flight. It was common ground that there was such a flight in that G evening and that the ATC plane took off at around 10 p.m. The black briefcase he had in the checking-in hall belonged to the said Magogo and he handed it over to Magogo soon after Magogo had paid the airport tax. He then went upstairs to the International Departure Lounge and from there he escorted Magogo right up to the ATC H plane.

On his way back and just when he emerged from the ATC tube he saw the KLM passengers proceeding to their plane. He also went into the KLM tube searching for Yahaya Lweno who was travelling to Brussels on that plane. I He was not carrying any briefcase. He wanted to ask Yahaya to buy a Mercedez Benz spare

A part for him. That Yahaya Lweno actually travelled on that flight was confirmed by PW.8 John Njawa.

He then saw PW.2 and PW.3 in the tube and approached them. He asked PW.2 whether he had seen Yahaya Lweno and he received a negative reply. As we have seen, according to PW.3, this question was put to him and B not to PW.2, but that matters for nothing. Then, as he was standing ten feet from the plane waiting for Yahaya Lweno to pass, he saw PW.7 coming out of the plane and walking towards the departure lounge. A short while later he saw him coming back to the plane followed by Nazeem and some KLM hostesses.

C Next he saw PW.7 emerging out of the plane holding the offensive briefcase, Nazeem following him, and the two proceeded to the Customs Office. As he had not succeeded to meet Yahaya he entrusted a written message to one of the KLM crew to pass on to Yahaya. That done, he followed PW.7 and Nazeem. PW.7 asked him to D be a witness and he agreed and subsequently wrote a statement, exhibit D.2. He maintained that he was a mere witness to the incident.

In his judgment the presiding judge reviewed the material evidence and analyzed the same. He then came to the E following conclusions. First, that it is true that the offensive briefcase was given over to Nazeem by Aziz; second, that Aziz's story that he had gone to the aircraft to search for Yahaya Lweno was false and an afterthought; third, that Aziz was privy to the contents of the briefcase; and lastly, that at law Aziz's act of handing over the briefcase F to Nazeem in

those circumstances constituted an attempt on his part to exporting the moneys and the minerals unlawfully.

The appeal was brought on ten grounds. But two grounds i.e. 7th and 10th which related to the sentence were G abandoned at the hearing, no doubt upon realizing the futility involved in pursuing the same. Mr. Marando, learned advocate, appeared for the appellant, while Mr. Kamba, learned State Attorney, represented, the respondent, the Republic.

The first ground is that the learned judge erred in fact in accepting, as if unchallenged, the allegation that the H appellant had told PW.5 that he was waiting for a Fokker Friendship to fly to Kilimanjaro, and that such acceptance of the allegation made the judge prejudiced against the sincerity of the appellant.

We dismiss this ground. In his address Mr. Marando relied on what appears at page 52, paragraph 2, of the I record. It is manifestly clear to us that what was said by the judge in that passage was merely in the course of reviewing the evidence that was adduced

by the prosecution, as he next did the defence case. The judge's finding on the point came much later. A

It was common ground that PW.5 met and conversed with the appellant in the DIA checking-in hall on 19/3/89 in the evening. It was also common ground that the two met again on the following morning at the lock-up when PW.5 made the allusion that the appellant was supposed to be at Kilimanjaro rather than in the police cell. As mentioned, B it was PW.5's evidence that the appellant had told him on the previous evening that he intended to fly to Kilimanjaro, a thing denied by the appellant. Later on, when he had recapitulated and assessed the whole evidence, the judge preferred the version of PW.5, and in our view the judge was entitled to do so. If PW.5 was a liar, it is C difficult to see the motive, nor was any suggested by the appellant.

The second ground is that the learned judge erred in fact in accepting that PW.7 had checked-in Nazeem and at D the same time preceded him to the departure gangway. It was contended that under normal circumstances Nazeem must have rushed far ahead of PW.7.

We also dismissed this ground, for two reasons. First,under the circumstances that prevailed at the DIA Nazeem must have stopped at two other points for immigration and security checking. Secondly, the appellant himself stated E in his evidence that he saw PW.7 in the KLM tube before he saw Nazeem.

The third ground is that the learned judge erred in fact in stating that PW.7 had testified that the appellant had moved and stationed himself next to the plane's door as Nazeem was entering the plane. F

We pause here to observe that the precise place where and the moment when the appellant is said to have handed over the briefcase to Nazeem was a subject which generated some arguments in the High Court. In dealing with G this ground our task is only to refer to the evidence on record to see whether that complaint is justified.

We content ourselves with the evidence of the appellant himself. He stated, in effect, that he was standing ten feet from the plane when Nazeem was apprehended. Now whether ten feet

cannot be termed next to the plane's door H seems to us to be less of a meaningful argument and more of a splitting of hairs. This ground is accordingly dismissed. But mark this: we are at this moment not expressing any view on the veracity of the evidence of PW.7 or, for that matter, of PW.2 and PW.3, simply because as worded this ground does not call upon us to go into that I matter.

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A We reserve the fourth ground for later. We turn to the fifth ground and it is well and convenient to consider it together with the sixth ground.

The fifth ground is that the learned judge erred in failing to make a finding on the credibility of PW.7 and in failing to B hold that the glaring difference between his testimony in court and his statement to the police indicated that the new story narrated in court "between" PW.2, PW.3 and PW.7 was made up.

And the sixth ground is that the judge erred in law and in fact in holding that the testimonies of PW.2 and PW.3 C corroborated that of PW.7, an in failing to find that PW.2 and PW.3 were not independent witnesses.

As the trial judge correctly observed, the prosecution case depended very substantially upon the evidence of PW.7, PW.2 and PW.3. Little wonder that the considerable burden of the submissions made by Mr. Ismail, who D advocated for the appellant in the High Court, was levelled at the credibility of those three witnesses.

The impugnment of PW.7's testimony pertains to his puzzling turn-back which we have already demonstrated. Mr. Marando has branded PW.7 as double-tongued and we think that there is some justification in that attack. Quite E clearly that turn-back was the most unsatisfactory feature of the prosecution case, and it was significant and substantial.

This inconsistency did not escape the trial judge's attention and he devoted a few words to it. He however found F the evidence of PW.2 and PW.3 to be corroborative of PW.7's testimony on the point. But he did so without pronouncing on whether PW.7 was credible or not. Mr. Marando argued that the judge erred in failing to do so.

G It seems that Mr. Marando's submission has the support of the law. By what the Court of Appeal for East Africa told us in Uganda v Shah and Two Others [1966] EA 30. it was essential for the judge to approach the matter in two stages: first, to decide whether in the light of all the evidence PW.7 was worthy of belief; secondly - H and only if PW.7 was found credible - to look for the existence of credible evidence, independent of PW.7, which support the evidence of PW.7 in a material particular.

The reason, a sound one, was state in D.P.P. v Hester [1973] AC 296, 315 and it is this:

I The purpose of corroboration is not to give validity or credence to evidence which is deficient or suspect or incredible but

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only to confirm or support that which as evidence is sufficient and satisfactory and credible. A

Lord Hailsham gracefully stated the same in D.P.P. v Kilbourne (1973) AC 729, 745 D, to wit:

If a witness's testimony fails of its own inanities the question of his needing or being capable of giving corroboration does B not arise.

We cannot but agree that the inconsistency of PW.7 eroded his credibility to some extent. In fact there is an C oblique suggestion by the trial judge to the same effect. The judge remarked thus:

I have no doubt that the passage from Exhibit P.3 fundamentally contradicts what PW.7 stated in Court. The witness acknowledged the difference and stated that the police statement was wrong on this aspect but his evidence in Court is D correct. I think, with respect, that if witnesses were allowed to tell the court when they are wrong and when they are correct and get away with it, they could easily take the court for a ride. E

An apt and pleasant reflection indeed. But this was all the judge said in that regard.

Sequel to that it was submitted that the judge erred in holding that the evidence of PW.2 and PW.3 were not F independent witnesses, that they had conspired with PW.7 to incriminate the appellant, and that they were present at the scene by design and not fortuitously. The questions were posed why did the two witnesses hang about at the place when they had already knocked off; and why, being security officers, didn't they seize the briefcase. G

The trial judge dealt with the matter in his judgment. He was satisfied that PW.2 and PW.3 were independent witnesses and "not persons dancing to the tune of PW.7". He rejected the conspiracy theory and was of the opinion that in general the witnesses gave the court a true account of the incident. H

We have no reason to think that the judge was wrong. We see no tangible evidence of conspiracy between PW.7 and PW.3. The explanation that PW.2 and PW.3 gave as to why they hanged about the place, namely that they I were waiting for their colleagues so that a motor vehicle could ferry them together, was convincing one.

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A And it is understandable why they did nothing about the briefcase in the tube, considering the circumstances of the moment. They had been given to suppose that a momentous episode was in the offing, and we take the view that the instinct of the average man would have adopted a wait-and-see attitude.

B Now in relation to Nazeem's receipt of the briefcase from the appellant the accounts of PW.2 and PW.3 were, in our view, also first-hand, and the credence of the prosecution case was to be judged not on the evidence of PW.7 alone but on all the materials on record. So in the final analysis we dismiss the two grounds, notwithstanding C the trial judge's failure to decide on the credibility of PW.7's evidence in that respect.

We pass to the eight ground and we will take it along with the fourth ground. The fourth ground is that the learned D judge erred in law in holding that the whole case stood or fell on the basis of credibility, and that he failed to appreciate that sufficiency of evidence was equally important. The eighth ground is that the judge erred in law in not drawing an adverse inference against the prosecution for their "deliberately" failing to call the KLM crew as witnesses.

E Mr. Ismail did touch on the non-calling of the KLM crew in his final submissions in the High Court and the judge agreed with him only up to a point. The judge expressed the view that if the KLM crew had been called their evidence would have been useful like that of PW.2 and PW.3, but that the absence of that evidence did not F diminish in any degree the value of the evidence of the two witnesses.

The appellant's contention is that the judge was wrong and Mr. Marando has submitted that the said crew would G have been impartial witnesses and that the failure by the prosecution to call them should have given rise to an inference that their evidence would have been unfavourable to the prosecution. In support Mr. Marando cited Section 122 of the Evidence Act 1967. Against such submission Mr. Kamba argued briefly that in principle the H prosecution is not bound to call all the witnesses bearing upon the charges.

The general and well-known rule is that the prosecutor is under a prima facie duty to call those witnesses who, from their connection with the transaction in question, are able to testify to material facts. If such witnesses are I within reach but are not called without sufficient reason being shown, the court may draw an inference

adverse to the prosecution. But the practical application of this rule perhaps calls for some exposition. A

In the first place it should be stressed that the inference referred to in that rule is only a permissible one and is normally drawn in obvious cases, where, upon viewing the matter objectively, the court is satisfied that the B inference will not result into a miscarriage of justice.

Secondly, and this is probably what Mr. Kamba had in mind, it is not the duty of the prosecution to adopt an attitude of non-committal. It is a wrong idea that the prosecution is under obligation to call and examine all C witnesses who are acquainted with the facts of the case irrespective of consideration of time (and, for that matter, consideration of willingness of the witnesses to speak to facts). The prosecution are expected to be always concerned with the shortening of trials. So where there is evidence that a large number of witnesses could have deposed about the incident, the absence of some of them from the list of witnesses does not generally created a D doubt whether the prosecution version is to be believed.

Thirdly, even where the adverse inference is properly drawn, that does not necessarily ruin the prosecution case. The Court must judge the evidence as a whole and arrive at its conclusion accordingly taking into account the E persuasiveness of the evidence given in the light of such criticisms as may be levelled at the absence of possible witnesses.

It would appear that the KLM crew were not in the list of the prosecution witnesses. It is to be borne in mind that the KLM plane took off soon after Nazeem was nabbed, and it is by no means certain whether the police were F minded to trace those people and take statements from them. Having pondered over the matter in the light of the considerations we have set out above, we hesitate to say that G this is a case which befitted the drawing of the adverse inference. Accordingly, we dismiss the two grounds.

We come to the last ground, the ninth, namely that the learned judge erred in fact in holding that it was the appellant who carried the briefcase to the gangway. H

There is no force in this ground. In our judgment the judge was justified to make that finding. We have come to that conclusion on the basis of what we have stated above about the evidence of PW.2, PW.3 and PW.7, and in view of other items of evidence borne by the record that went some way to corroborate the evidence of those three I witnesses.

1991 TLR p82

MAPIGANO AG JA MAKAME AND RAMADHANI JJA

A The first item was the appellant's lie that he intended to fly to Kilimanjaro in that evening. The second was his persistent pleadings with PW.7's office and we are given the distinct impression that those pleadings were calculated to mislead PW.7 and prevent the investigation and detection of the crime.

B The third item was his allegation, which was a lie, that he went into the KLM tube to look for Yahaya Lweno. This allegation is missing in his statement, exhibit D.2. We are aware that his ascertain was that he wrote the statement as a witness and not as a suspect. But that cannot be true, for there was evidence from PW.6, which C was not challenged, that there was a moment when PW.7 accused the appellant of having passed the briefcase on to Nazeem and demanded of him to disclose what the briefcase contained. We are satisfied that in such circumstances the appellant must have known from the start that he was a suspect in the crime, and that when he D wrote the statement he fully apprehended that was not a moment for fibbing. He clearly understood that he owed PW.7 an explanation as to why he happened to be in the tube and why criminal proceedings should not be taken against him.

This ground too is dismissed.

E We have been invited to wonder how the appellant could have passed on such an offensive briefcase to Nazeem in the full view of PW.2, PW.3 and PW.7 whose position he knew. This fact is hard to explain only at first sight. The plausible and short answer is that Nazeem was about to fly and there was hardly any better alternative for the F appellant than staking all on a small chance, and we should all know that risk-taking or a sense of confidence has woefully betrayed many a criminal.

Finally, there was the fascinating insinuation made by Mr. Ismail in the High Court that PW.7 knew before hand G that an attempt would be made to smuggle out the moneys and the minerals. That is a perception one may have and thus a possibility that cannot be dismissed out of hand. But we have failed to grasp the purpose for which this suggestion was canvassed. Because even if the court were minded to go along with that suggestion we do not see H how that could have tainted the evidence of PW.7, let alone precluded the convictions. On the contrary, we think that it would probably have rebounded to the prosecution's advantage.

For the reasons we have stated we find that there is no ground for interfering with the convictions. This appeal is I accordingly dismissed.

Appeal dismissed.

1991 TLR p83

A

[zRPz]WILLIAM RAJABU MALLYA AND TWO OTHERS v REPUBLIC 1991 TLR 83 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Omar JJA and Mapigano Ag JA

2nd July 1991 B
Flynote
Criminal Practice and Procedure - Jurisdiction - Court of Resident Magistrate presided over by a district magistrate - Whether court duly constituted- s. 6(1) Magistrate's Courts Act, 1984. C
-Headnote
The appellants, William Rajabu Mallya, Re v Father John Kiwere and Louis Augustino Mbuya were charged in the Resident Magistrates Court for the offences of obtaining money by false pretences and conspiracy to defraud.
When the accused appeared before the court for the first time the court was duly presided over by a Resident D Magistrate. Subsequently the court was presided over by a Principal District Magistrate who tried and eventually disposed of the case.
Two of the accused including Re v Father John Kiwere were acquitted by the trial court. The DPP appealed to E the High Court against their acquittal. The High Court found them all guilty and sentenced them to 5 years' imprisonment.
One of the accused, Re v Father John Kiwere in his appeal to the Court of Appeal raised the issue of lack of jurisdiction on the part of the trial magistrate, relying on section 6 (i)(c) of the Magistrates' Courts Act 1984. F
Held: (i) If a case is designated for a particular court, then it should be heard only by a member of that court notwithstanding that a member of some other court has substantive jurisdiction over the offence and could hear it; G

(ii) because the Principal District Magistrate presided over the court of Resident Magistrate when he was trying this case, the court was not duly constituted within the meaning of section 6(i)(c) of the Magistrates' Courts Act 1984. H
Case Information
Trial a nullity.
Kimomogoro, for respondent. I
1991 TLR p84
KISANGA AND OMAR JJA AND MAPIGANO AG JA
[zJDz]Judgment
A Kisanga and Omar, JJ.A. and Mapigano, Ag. J.A.: The three appellants were jointly charged in the Resident Magistrate's Court in one information containing four counts, two counts being for obtaining money by false pretences and the other two for conspiracy to defraud. The trial Court convicted one of them on the counts B of obtaining money by false pretences only, and acquitted all of them on the conspiracy charges. The Director of Public Prosecutions appealed against the acquittals, and the convicted person cross-appealed against his conviction for

obtaining money by false pretences. The cross-appeal was allowed in full while the appeal was allowed only in C part by the High Court thus resulting in each of the present appellants being sentenced to a substantive term of 5 years' imprisonment. On the day of the judgment by the High Court i.e. 30.4.90 only the appellant Re v Father John Kiwere was present and although the High Court directed a warrant of arrest to issue against the remaining D two persons, the said persons have not been arrested to date, it being claimed that they have absconded to Kenya. Curiously enough, however, all of them after their conviction were able to instruct Mr J.J. Mwale, advocate, who gave on their behalf a joint notice of appeal, and who continues to act for the appellant William Rajabu Mallya, E while subsequent to the said notice of appeal the appellant Louis Augustino Mbuya also was able to instruct Mr D'Souza, advocate, who is representing him now.

F We have to state that this kind of behaviour and attitude on the part of the appellants Mallya and Mbuya is most unsatisfactory, and must be deprecated. There can be no doubt that they knew the precise terms of the judgment of the High Court. Yet they chose only to appeal against that judgment but deliberately ignored that term of it which required them to serve the sentence. It amounted to a flagrant disregard of the court order which tended to G bring the system of the administration of justice into ridicule. This is totally unacceptable. Members of the society must develop a culture of respect for lawful orders. While it is right and proper that people should be aware of their rights under the law, and that every effort should be made to help them realize those rights, it must be H emphasized that people also have a duty to discharge their obligation under the law. By deliberately avoiding to serve the sentence which was lawfully passed on them, the two appellants were in breach of a society's basic norm; and that must not be allowed to continue.

I Now, when the appeal was called on for hearing, our attention was called to a letter written by the police stating that they were

still trying to reach the two appellants in Kenya, and for this purpose the police asked for a fresh warrant of arrest A to issue and a copy of the judgment in the case. In the light of this request we decided to adjourn the appeals of the two appellants, pending the outcome of this further attempt by the police, and proceeded to hear that of the Re v Father John Kiwere who was present. B

This appellant who was unrepresented argued the appeal in person in the course of which he raised the issue of lack of jurisdiction on the part of the trial court and relied for this on the provisions of Section 6 (1)(c) of the Magistrates' Court Act 1984. That provision reads: C

> 6.- (1) Subject to the provisions of Section 7, a Magistrate's Court shall be duly constituted when held by a single magistrate, being -
>
> (a)-
>
> (b)- D
>
> (c) in the case of a Court of Resident Magistrate, a Resident Magistrate.

(Section 7 is not relevant to the facts of the present case). A perusal of the record shows that the case was filed in E the Resident Magistrate's Court of Arusha and when the accused were brought before the court for the first time the court was duly presided over by a Resident Magistrate. Subsequently, however, the court was presided over by a Principal District Magistrate who tried and eventually disposed of the case. There can have been no F inadvertence on the part of the Principal District Magistrate because both the Court case file and the charge sheet were clearly titled "IN THE RESIDENT MAGISTRATE'S COURT AT ARUSHA". The appellant in effect contended that the Court was not duly constituted because the Principal District Magistrate sat in the wrong Court, G in violation of the provisions of Section 6 (1) quoted above.

Mr. Kimomogoro of the Principal State Attorney's Chambers Arusha resisted the appeal. He referred us to a decision of the High Court in the case of Lucas Mwita and Two Others MZA Cr. App. NO. 30 of 1977 where a District Magistrate had presided over in the Resident Magistrate's Court and the proceedings were declared a H nullity. However the learned Counsel submitted that the proceedings in the present case were saved under the provisions of Section 387 and 388 (1) of the Criminal Procedure Act. We propose not to set out the provisions of I those sections and to examine them

A in detail, not out of disrespect to the learned counsel but because we are satisfied that they are completely irrelevant to the issue at hand.

Again learned counsel took the view and argued at length that the error was not fatal because the trial magistrate B had substantive jurisdiction to try the offences, and that the wrong titling or citing of the court did not really matter. With due respect, we do not agree. To uphold that view would render meaningless the provisions of S. 6 (1)(c) above cited. In our view the correct meaning to be attached to that provision is that if a case is designated for a C particular court, then it should be heard only by a member of that court notwithstanding that a member of some other court has substantive jurisdiction over the offence and could hear it. Perhaps an analogy from civil cases might serve better to illustrate the point. Under Section 76 of the Law of Marriages Act the High Court, a court of D resident magistrate, a district court and a primary court each has concurrent jurisdiction over matrimonial proceedings. But it can hardly be maintained, for instance, that resident magistrate may properly try a divorce suit which was filed in the High Court.

E For the reasons as expressed above, we agree with the appellant that because the Principal District Magistrate presided over the Court of Resident Magistrate when he was trying this case, the court was not duly constituted within the meaning of Section 8 (1) (c) of the Magistrates' Court Act. The proceedings were, therefore, a nullity F and they are accordingly set aside. As this affects equally the trial of the remaining appellants, our earlier order of adjourning their appeals to a later date is necessarily overtaken by the event and is accordingly vacated.

G The question, what next, has exercised our minds quite considerably. The appellant Re v Father John Kiwere has been very co-operative from the very inception of these proceedings.

Indeed while the offences were committed partly in Tanzania and partly in Kenya, it is he who initiated the investigations, and he has since co-operated with the Police at every stage. He deserves credit for that.

H On the other hand so far he has served only about one year out of the 5 years' prison sentence meted out to him. He was charged jointly with the remaining two appellants who have been so unco-operative and who are still at large. Again the offences which the appellants were jointly charged with and convicted of involved defrauding a I Bishop and Convent Sisters in Kenya a total of Kenyan Shillings 426,285/=, a substantial sum which remains unrecovered. We consider that a practical way out of this rather complex situation

is to leave the matter entirely with the Director of Public Prosecutions to decide whether or not to institute the A charges afresh, having regard to the circumstances alluded to. In the meantime the appellant is set free. It is ordered accordingly.

Order accordingly. B

1991 TLR p87

C

[zRPz]YOKE GWAKU AND OTHERS v NAFCO AND OTHERS 1991 TLR 87 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Omar JJA and Mapigano Ag JA

4 July, 1991 D

Flynote

Civil Practice and Procedure - Court of Appeal Rules - Record of appeal not incorporating a formal or extracted order or decision appealed against - Effect - Rule 89(1)(h) Court of Appeal Rules.

Civil Practice and Procedure - Court of Appeal Rules - Record of appeal not incorporating a formal or extracted order or E decision appealed against - Whether whole order need be extracted and incorporated.

Court of Appeal Rules - Record of appeal not incorporating a formal or extracted order or decision appealed against - Effect - Rule 89(1)(h) Court of Appeal Rules. F

Court of Appeal Rules - Record of appeal not incorporating a formal or extracted order or decision appealed against - Whether whole order need be extracted and incorporated.

-Headnote

The appellants who had lost a suit in the High Court when appealing against it failed to incorporate a formal or G extracted order or decision appealed against. Contra the argument of the respondents that the appeal was incompetent for failure to comply with an essential step, counsel for the appellants sought to impress on the court that he was under no obligation to draw up the formal order because he was not appealing against the whole order H of the High Court but merely against a finding which formed only a part of the entire order.

Held: (i) Appeal is incompetent for failure to comply with an essential step; I
1991 TLR p88
KISANGA AND OMAR JJA AND MAPIGANO AG JA
A (ii) where a party wishes to appeal against a finding or findings which form only a part of the whole decision, he is not obliged to draw up the formal order covering the whole decision. The rule requires him to extract an order corresponding only to that finding or findings which it is intended to appeal against.
Case Information
B Order accordingly.
Tenga, for the appellants
Umbulla, for the respondents
[zJDz]Judgment
C Kisanga and Omar, JJ.A. and Mapigano, Ag. J.A.: The plaintiffs filed a suit in the High Court claiming inter alia, a declaration of ownership over an area of land now held by the defendants under certificate of title No. 5104. In the written statement of defence the defendants averred, among other things, that the plaintiffs' alleged D rights over the suit land were extinguished vide Government Notice No. 260 of 1989 in which case the suit disclosed no cause of action, and that this matter would be raised as a preliminary point at the commencement of the hearing of the suit. When the suit came on far hearing the point was accordingly raised and arguments centred E on whether Government Notices Nos. 260 of 1989 and 88 of 1987 which were relied on as extinguishing the plaintiffs' rights were valid. Ruling on the point, the High Court (Munuo, J. (Mrs)) found they were, but declined to F dismiss the suit because there were other grounds on which the suit could proceed to trial.
The plaintiffs were aggrieved by the finding that the said Government Notices Nos. 260 of 1989 and 88 of 1987 G were valid. They accordingly sought and obtained leave to appeal to this Court against such finding. Upon the appeal coming on for hearing, however, Mr Umbulla, Counsel for the respondents, took a preliminary objection that the record of appeal does not incorporate a formal or extracted order to the decision being appealed against. H This, the learned Counsel submitted, amounted to failure by the appellants to comply with an essential step, in terms of rule 89 (1) (h) of the Court of Appeal Rules, as a result that the appeal should be struck out as being incompetent. In support of that submission he cited two decisions of this Court in the cases of Arusha International Conference Centre v D.A. Kavishe Civil Appeal No. 34 of 1988 (Unreported), and Shamsa I Mohamed or Lily Philips v Halima Mohamed Civil Application No. 2 of 1990 (Unreported).
1991 TLR p89
KISANGA AND OMAR JJA AND MAPIGANO AG JA
He also referred us to decision of the East African Court of Appeal in the case of Farrab v Official Receiver A [1959] E.A. 5 at p.10.
Dr. Tenga appearing for the appellants conceded the omission which he attributed to inadvertence on the part of his colleague who had prepared the record of appeal. However the learned Counsel went on to submit that the omission to incorporate the formal order was

harmless because it did not prejudice the respondents who were fully B aware of the decision being appealed against, and which decision was indeed in their favour. We could find no merit in the submission. Such an argument could be advanced in all the cases, including those cited above, concerning this point but it would make no difference. The rule is not really based on the requirement that the C respondent should be aware of the decision being appealed against. For, even where the actual judgment or decision being appealed against is incorporated in the record this would not meet the requirements of rule 89 (1) D (h). The point is that this is essentially a technical rule which indeed causes some injustice, for instance, to a party who has to incur double expenses to prepare the record of appeal a second time But so long as the rule is not amended or superseded it has to be complied with.

Relying on an obiter dictum in Shamsu's case cited above, the learned Counsel contended that this rule may be E departed from in the exceptional circumstances of this case, the exceptional circumstance being that the order in this case was duly extracted but inadvertently omitted to be incorporated in the record of appeal. We think that F this is a very weak argument. For, even if we were minded to consider the obiter dictum expressed in Shamsu's case above cited, we are quite satisfied that Counsel's mere inadvertence to incorporate the formal order in the record of appeal could not, by any stretch of imagination, amount to be exceptional circumstance.

And finally the learned Counsel appeared to contend that in any event there was no obligation on his part to draw G up the formal order because he was not appealing against the whole order of the High Court; he was merely appealing against a finding which formed only a part of the entire order. Once again, we are unable to sustain this submission. A decision may consist of one or more findings, and an aggrieved party may choose to appeal against H the whole decision or against certain findings forming only a part of the whole decision. We think that where, as in this case, a party wishes to appeal against a finding or findings which form only a part of the whole decision, he is not obliged to draw up the formal order covering the whole decision. In our view the rule requires him to I

A extract an order corresponding only to that finding or findings which it is intended to appeal against.

In the present case the Court order was for refusing to dismiss the suit on the ground that although the Government B Notices Nos. 260 of 1989 and 88 of 1987 were found to be valid, nevertheless the suit could not be dismissed or not disclosing cause of action because there were other grounds on which the claim could proceed to trial. It was therefore open to the appellants to draw up the order in relation only to the finding that the said Government Notices were valid.

C In the result the preliminary objection is upheld. The appeal is accordingly struck out as being incompetent. No order for costs is made as the appellant is under legal aid.

Appeal dismissed.

Court Court of Appeal of Tanzania - Singida
Judge Mwalusanya J

24 July, 1991
Flynote
F Criminal law - Theft - Whether a spouse can steal from another spouse.
Family law - Theft - Whether a spouse can steal from another spouse.
Criminal Practice and Procedure - Sentencing - Conditional discharge - What the condition is - Section 4(1) of Primary G Courts Criminal Procedure Code.
-Headnote
The respondent was charged with stealing from her husband. The Primary Court convicted her, awarded a punishment of conditional discharge and ordered her to pay half of the stolen money to her husband i.e. Shs. H 15,000/=.
The wife who after the theft began to live in separation appealed to the District Court protesting her innocence. The District Court quashed the conviction and sentence of the Primary Court on the ground that the respondent I had a defence of "honest claim of right".
1991 TLR p91
MWALUSANYA J
The second appellate court considered whether or not the respondent committed theft. The court also considered A what constitutes a condition in a conditional discharge.
Held: (i) Under section 264 of the Penal Code, Cap. 16, a husband may be guilty of stealing from his wife or a wife from her husband;

(ii) since the trial court was unanimous that the respondent had taken her husband's money and the District B Court endorsed that view, the connection was inevitable;

(iii) under section 258 of the Penal Code, Cap. 16, anyone who takes away something under an honest C claim of right is not guilty of the offence of theft. In the case at hand, the respondent had at no time claimed that she had taken the Shs. 30,000/= under an honest claim of right;

(iv) under Section 4(i) of the Primary Court's Criminal Procedure Code the condition for a conditional D discharge ought to be that "during a period not exceeding one year the accused shall appear and receive sentence when called upon and in the meantime he or she shall keep the peace and be of good behavour". It was wrong for the trial court to order that the condition for discharge was that the accused pay her husband half of the stolen E money.
Case Information
Order accordingly.
No case referred to.
[zJDz]Judgment
Mwalusanya, J: The respondent Zainabu d/o Swalehe is the wife of the appellant Kisese s/o Mbugha, but they are F now living under separation. The respondent was convicted by the

Ilongero Primary Court, in Singida District of stealing Shs. 30,000/= belonging to her husband. The trial court awarded a punishment of conditional discharge G under s.4(1) of the Primary Courts Criminal Procedure Code and the said respondent was ordered to pay her husband half of the sum that she had stolen i.e. Shs. 15,000/=.

The respondent appealed to Singida District Court protesting her innocence that she had never stolen the alleged Shs. 30,000/=. The District Court quashed the conviction and sentence and also set aside the order of payment H Shs. 15,000/= to the husband. The learned District Magistrate inter alia stated:

The woman took what she thought was her right. Therefore she had a defence of bona fide claim of right on her side. I

1991 TLR p92

MWALUSANYA J

A That is why the conviction was quashed.

With respect, the learned District Magistrate was wrong. It is true that under s.258(1) of the Penal Code Cap. 16 B anyone who take away something under an honest claim of right is not guilty of the offence of theft. In the case at hand, the respondent had at no time claimed that she had taken the Shs. 30,000/= under an honest claim of right. She simply stated that she never had taken her husband's money. It was wrong for the learned District Magistrate C to put words in the mouth of the respondent, which was not part of her defence.

Under s.264 of the Penal Code Cap. 16 a husband may be guilty of stealing from his wife or a wife from her husband. So the sole question in this case was whether the respondent had stolen the money from her husband or D not, and nothing more. The trial court was unanimous that respondent had taken her husband's money and the District Court endorsed that view. That being the case, the conviction was inevitable. Any extenuating circumstances ought not to disturb the inevitable conviction, but may only affect the sentence to the imposed.

E I may only observe in passing that even if the respondent had raised the defence of honest claim of right, it is unlikely that she would have succeeded in the circumstances of this case. This is because the bona fides have been dispelled by the fact that she ran away from the matrimonial home since that day, and has been living under F separation since then. If she had an honest claim of right to the money, she would have at least remained at the matrimonial home to spend the money for domestic purposes. But that was not the case.

G I may also point out that the husband established at the trial that the money in question was his separate property as accepted under s.58 of the Law of Marriage Act No. 5/1971. It was not joint property which was acquired by joint efforts. In fact that was common ground at the trial.

H The learned District Magistrate was not happy with the order of conditional discharge that was granted by the trial court in that the condition for the discharge was that the accused should pay her husband half of the stolen money. I agree that, that was wrong. Under s.4(1) of the Primary Courts Criminal Procedure Code the conditions I for a conditional discharge ought to be that: 'during a period not exceeding one year the accused shall appear and receive sentence when called upon and in the meantime he or she shall

1991 TLR p93

keep the peace and be of good behaviour'. That was not done, and so the trial court went wrong. A

In the event this appeal is allowed. The judgment of the District Court is set aside. The order of conviction of the respondent by the trial court is restored.

The order for conditional discharge by the trial court is restored save that it is to be accompanied by the usual B conditions set out in s.4(1) of the Primary Courts Criminal Procedure Code. The order of refund of Shs. 15,000/= is set aside but that the respondent will pay her husband Shs. 30,000/= which she stole. C

Order accordingly.

1991 TLR p93

D

[zRPz]HENRY LYIMO v ELIABU E MATEE 1991 TLR 93 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Kyando J

9 August, 1991

Flynote

Civil Practice and Procedure - Interlocutory Order - Whether High court has jurisdiction to invoke its revisional powers in E respect of interlocutory orders.

-Headnote

The respondent filed a suit against the applicant in the Resident Magistrate's Court. Then he applied for temporary F injunction to restrain the applicant from doing a number of things. He also prayed for a temporary closure of business in which the applicant was involved pending final disposal of the suit. The lower court granted the application. Aggrieved the applicant filed this application in the High Court praying that the order of closure of the G business be revised.

Held: The order made by the learned magistrate is clearly an interlocutory one. It is an interim order pending the determination of the case. It is therefore not a case decided within the meaning of the provisions of section 79(1) of H the Civil Procedure Code and this court has no jurisdiction to invoke its revisional powers as provided for in that section.

Case Information

Application dismissed. I

1991 TLR p94

KYANDO J

A Cases referred to.

1. Kassam v The Regional Land Officer [1971] HCD N. 15.
2. Jayantilal Gandesha v Kilingi Coffee Estate Ltd. & Another [1968] HCD N. 399.
3. Ryan Investments v USA [1970] EA 675.

B Mkondya, for the applicant

Mbuya, for respondent

[zJDz]Judgment

Kyando, J.: The applicant is the defendant in (RM) Civil Case No. 32 of 1990 filed in the Resident Magistrate's C Court "at Dar es Salaam". In that suit the plaintiff/respondent avers; inter alia, that he is the beneficial owner of all that land at Kinondoni Shamba wherein there is a building known as ARAWA BAR RESTAURANT AND D GUEST HOUSE". He also avers that "in 18/7/19 (sic) the plaintiff entered into an oral business agreement with the defendant" whereby they agreed that they "will carry on business of bar, restaurant and guest house on the said land", and that the defendant now is attempting to sell the suit premises and some personal properties belonging to E the plaintiff secretly to some persons unknown to the plaintiff.

The value of the alleged suit premises and/or the personal properties has not been indicated in the plaint. This is violative of 0.VII r. 1 (i) of the Civil Procedure Code, 1966, which requires that amongst the particulars to be F contained in a plaint are "a statement of the value of the subject matter of the suit for the purposes of jurisdiction and court fees, so far as the case admits".

Be that as it may, the plaintiff has then prayed for the following reliefs, amongst others:

G (1) A declaration that he is the lawful owner of the suit premises, and

(2) A permanent injunction to restrain the defendant either by himself, his servants or agents from either entering the suit H premises or selling the suit premises or any of the plaintiff's property in the suit premises.

On the 25th of April, 1990, he (the plaintiff) presented an application in the court below for temporary injunction to restrain the defendant, his servants or agents from either selling the suit premises or any of the properties in the suit I premises which belong to the plaintiff pending final determination of the suit. He also

prayed for a temporary closure of the business pending final disposal of the suit. In a ruling delivered on 16/5/1990 A the court (Kimaro SRM) granted all the above prayers. The applicant/defendant then filed this application in this court praying that the order of closure of the business contained in the Magistrate's ruling be revised.

At the hearing of the application before me, after Mr Mkondya for the applicant/defendant had submitted in support B of the application, Mr Mbuya replied by stating that the application, having been brought under Section 79 of the Civil Procedure Code, is incompetent because, he argued, the order which it is sought to be revised was an interlocutory order, whereas Section 79 of the Civil Procedure Code applies to cases which have been decided. In C support of these contentions Mr Mbuya referred this court to Kassam v Regional Land Officer [1971] HCD n.15 and Jayantilal Gandesha v Kilingi Coffee Estate Ltd. & Another [1968] HCD n. 399. On the basis of the decisions in these cases Mr Mbuya submitted that the applicant's/defendant's application be dismissed. D

In reply, Mr Mkondya submitted that the application by the applicant is also brought under S.95 of the Civil Procedure Code. He also argued that though he had not so stated in the application, under s.44 of the Magistrates' Court Act, 1984, additional powers of supervision and revision

have been conferred on the High Court. He E submitted therefore that under these, latter provisions the High Court can, by revision, intervene in interlocutory orders of Magistrates' Courts.

In the case of Kassam v The Regional Land Officer (supra) it was held that s. 79 of the Civil Procedure Code F would not apply to revise a decision of a subordinate court over an interlocutory matter.

In Jayantilal Gendesha v Kilingi Coffee Estate Ltd. & Another, the facts and the holding of the court on the point were as follows: G

The suit proper involves a dispute over a contract between the parties for the sale of a farm. Plaintiff's advocate, who had acted for both the parties during the negotiation of the contract, was called by defendant as a witness. Plaintiff objected that H to allow this would amount to an abuse of the process of the court. The court permitted the summons to issue, and in addition ruled that in view of his role as a witness, plaintiff's advocate should be his retainer. This petition for revision is concerned only with these rulings. I

1991 TLR p96

KYANDO J

A Held: (i) This petition for revision was brought under section 79 (1) of the Civil Procedure Code, 1966. The High Court observed that it could have been brought under the Magistrates' Courts Act, Cap. 537, ss. 38, 39 as provided by s. 79 (2) of the Civil Procedure Code, which gives the High Court wider revisional powers than 79 (1). As plaintiff's petition did not refer B to the latter provisions, however, the court limited itself to s.79(1), which provides for revisional jurisdiction over decided cases. Whether an interlocutory decree may come within the meaning of "case" is a thorny question on which the authorities C diverge ... The present situation cannot qualify as a decided case under any reasonable definition. It was an interlocutory matter, unconcerned with the final decision or that of any of the issues before the court and was concerned entirely with a step in the procedure ....

D As noted above, Mr Mkondya relies also on s.95 of the Civil Procedure Code. I am of the view that that section cannot be had recourse to in this matter when there are specific provisions providing for revision (see (Ryan E Investments v USA [1970] EA 675). It is only a matter of those provisions being complied with by the applicant. As for the revision provisions in the Magistrates' Courts Act, 1984, as the case above holds, because those provisions have not been referred to in the applicant's application this court will only limit itself to s.79 of the Civil F Procedure Code under which the application has been filed.

The order made by the learned magistrate is clearly an interlocutory one. It is an interim order pending the determination of the case. It is therefore not a case decided within the meaning of the provisions of s. 79(1) of the G Civil Procedure Code and this court has no jurisdiction to invoke its revisional powers as provided for in that section. So, though the order (of closure of the business) appears patently unjustified, unlike the order for temporary injunction restraining sale or disposition of the properties, this court will not interfere with it by revision. H The applicant's/defendant's application, therefore, is dismissed, with costs.

I Application dismissed.

1991 TLR p97
A
[zRPz]AUGUSTINO MPONDA v REPUBLIC 1991 TLR 97 (HC)

Court High Court of Tanzania - Mbeya
Judge Mchome J

14 August 1991
Flynote
Evidence - Evidence of co-accused - S.33 of the Evidence Act 1967. B
Statutory Interpretation - S.172(2) Criminal Procedure Act 1985.
Criminal Practice and Procedure - Sentencing - Minimum Sentences Act 1972.
-Headnote
Augustino Mponda, the appellant was jointly charged with six others with burglary and stealing c/s 294 (1) and 265 C of the Penal Code, Cap. 16, respectively. The trial court convicted him relying on the evidence of a co-accused which was not corroborated independently. His colleagues were acquitted.
The offence committed was punishable under section 5 of the Minimum Sentences Act 1972. However, the trial D magistrate committed the appellant to 4 years' imprisonment, far below the prescribed minimum sentence. In passing the sentence the magistrate was purportedly guided by section 172 (2) of the Criminal Procedure Code 1985. E
Held: (i) In convicting the appellant relying on the evidence of a co-accused without independent corroboration, the trial magistrate acted contrary to the provisions of section 33 of the Evidence Act 1967. F

(ii) my interpretation of section 172 (2) (c) of the Criminal Procedure Act 1985 is that the period an accused has stayed in a remand shall be considered together with other mitigating factors while sentencing.

(iii) in the case of a scheduled offence under the Minimum Sentences Act 1972, the period shall be taken G into account while deciding what sentence is appropriate between the minimum and the maximum.
Case Information
Appeal allowed. H
Mbise for the respondent.
[zJDz]Judgment
Mchome, J.: The appellant, Augustino Mponda was jointly charged with six others with Burglary and stealing I contrary to section 294 (1) and 265 of the Penal Code respectively. He was found

A guilty and sentenced to four years imprisonment on the first court and two years on the stealing court. All his colleagues were found not guilty and acquitted. Being aggrieved by both convictions and sentence the appellant has preferred this appeal.

B On 14/7/89 one house belonging to SIDO Njombe was broken into and a lot of property stolen therefrom. These included one washing machine, one gas cylinder, one gas cooker, a grinding machine and a washing brush. The total value of the stolen property is TShs. 109,000/-. On 16/7/89, P.W.I., Detective Constable Edon received information that the stolen property was hidden in the C house of a certain Aderehema Mbilinyi, the original first accused person. With the help of another police detective P.W.I. went to the house and discovered the stolen property. O.W.II Selestine Rwenyagira, the SIDO Estate Manager identified the property as that of his company.

D Both Aderehema and the original 2nd accused person, one Rose Mvile, occupants of the house therein the stolen property was found named the appellant as the one who brought the stolen property into their house at 2.30 a.m. together with some friends of the appellant's.

E Despite the appellant's denial the trial court found him guilty. The learned State Attorney Mr Mbise did not support the conviction. He was right in doing so. For the trial court relied on the evidence of a co-accused without independent corroboration to convict upon. The evidence of D.V.8 cannot be said to be independent as he is the F son and brother of the original 1st and 2nd accused persons respectively and had an interest to save them as they are obviously guilty receivers. The trial Magistrate therefore acted contrary to the provisions of section 33 of the Evidence Act 1967 in convicting the appellant.

G There is no reason why the trial Magistrate acquitted the original 1st and 2nd accused even of the lesser offence of receiving stolen property. The odd hours in which they receive the property, 2.30 a.m., showed they knew or ought to have known the property to be stolen. I can not revise that acquittal here as it will be prejudicial to the H original 1st and 2nd accused persons who have not had opportunity of being heard.

The sentence of four years imprisonment is below the prescribed minimum under the Minimum Sentences Act, 1972. The value of the property stolen is well over Shs. 5,000/=. The trial Magistrate misinterpreted the provisions I of section 172 (2) (c) of the Criminal Procedure Act 1985 which states:

1991 TLR p99

MCHOME J

Where ... a person has been in remand custody for a period awaiting his trial; his sentence whether it is under the Minimum A Sentences Act, 198=72 or otherwise, shall start to run when such sentence imposed is confirmed, as the case may be and such sentence shall take into account the period person spent in remand. (The underlining is mine)

Section 172 (2) (c) above quoted does in no way amend the Minimum Sentences Act, 1972. The provisions of B Section 5 of the Minimum Sentences Act, which are applicable to this case are Mandatory. They state: ... the court shall sentence person to imprisonment for a term of not less than five years". C

If the legislature had intended to ammend the Minimum Sentences Act it would have done so under no uncertain terms and included the period an accused has stayed in remand as one of the circumstances in which a court may not apply this Act in Section 6 of Act No. 1/72. D
As there are no uncertain amendments to the Minimum Sentences Act, its mandatory terms have to be interpreted strictly. "Minimum" means "not less than". My interpretation of section 172 (2) (c) of the Criminal Procedure Act E 1985 is that the period an accused has stayed in remand shall be considered together with other mitigating factors while sentencing.
In the case of a scheduled offence under the Minimum Sentence Act, 1972 the period shall be taken into account while deciding what sentence is appropriate between the Minimum and the Maximum. In other words it is to help F the sentencing magistrate or judge on how much above the minimum sentence he should go in sentencing the accused. Going below the prescribed minimum is clearly unlawful.
Otherwise it would be absurd were an accused stays in remand for one year the magistrate deducts one year from G the mandates minimum sentence. And when he stays in remand for five years where the prescribed minimum sentence is five years an accused goes free.
Be that as it may, I allow this appeal, quash the conviction and set aside the sentence, the appellant is to be set free H immediately unless held for some other lawful cause.
Appeal allowed.
1991 TLR p100
A
[zRPz]ISMAIL BUSHAIJA v REPUBLIC 1991 TLR 100 (HC)

Court High Court of Tanzania - Mwanza
Judge Chipeta J

14 August, 1991
Flynote
B Criminal law - Criminal trespass - Ownership of trespassed property disputed - Whether proper in the circumstances to convict of criminal trespass - What Court to do.
Criminal law - Criminal trespass - Ownership of trespassed property disputed - Defence of bona fide claim of right.
-Headnote
C The appellant and the complaint had a dispute over a plot of land, each claiming ownership. When the appellant entered the suit plot and cut down some trees he was charged with and convicted of criminal trespass. On appeal the High Court considered whether the defence of bona fide claim of right was not open to the appellant, whether in D the circumstances it was proper to convict of criminal trespass and what the court should do in such cases.
Held: (i) Since this case boils down to a dispute of ownership of the shamba which is the subject matter of these E criminal proceedings it seems that this is a clear defence of bona fide claim of right;

(ii) it is wrong to convict a person for criminal trespass when ownership of the property alleged to have been trespassed upon is clearly in dispute between the complainant and the accused;

F (iii) when in a case of criminal trespass a dispute arises as to the ownership of the land the court should not proceed with the criminal charge and should advise the complainant to bring a civil action to determine the question of ownership - Saidi Juma v R [1968] H.C.D 158.

Case Information

G Appeal allowed.

Case referred to:

1. Saidi Juma v R. [1968] H.D.C. 158

Nasimire, for the appellant

Songoro, for the respondent

[zJDz]Judgment

Chipeta, J.: In Bukoba District Court, the appellant, Ismail Bushaija, was charged with and convicted of the I offences of criminal trespass and malicious damage to property contrary to sections 299

1991 TLR p101

CHIPETA J

(a) and 326 (1) of the Penal Code and was sentenced to pay a fine of Shs. 2,500/= in respect of each count. The A appellant was dissatisfied and so has appealed to this court.

To a large extent the facts are not in dispute. They are as follows: The complainant, one Ernest Ndyamukama (P.W.1) told the court that he owns a shamba in which he has planted various trees in Ibwera village, Bukoba. On B 10th September, 1988, at about 1.00 p.m he saw the appellant and three of his servants cutting trees in P.W.1's shamba, and in all they cut down 481 trees. When the appellant was asked by P.W.1 as to why the appellant was C doing such a thing, the appellant retorted by telling P.W.1 that he should go and ask the people who had given the trees to him.

Later the complainant reported the matter, surprisingly, to the Ward Office and the District Commissioner. Eventually the matter found its way to the Police and then to the Court.

In this defence, the appellant said that the shamba in dispute is his own shamba and that it had earlier been the D subject-matter of a civil suit in which he was the successful party. He called witnesses who, to some extent, backed up the appellant's claim.

With respect to Mr Nasimiro, learned counsel for the appellant, I tend to agree that this case boils down to a dispute E of ownership of the shamba which is the subject-matter of these criminal proceedings. It seems to me, therefore, that this is a defence of bona fide claim of right.

The learned trial magistrate blamed the appellant for not producing in court the judgment in the alleged civil case. F However, in this memorandum of appeal drawn up by his learned advocate, the appellant alleges that the civil case was Ibwera Primary Court Civil Case No. 2 of 1987.

In my view, it is wrong to convict a person for criminal trespass when ownership of the property alleged to have G been trespassed upon is clearly in dispute between the complainant and the accused. As was pointed out by this Court in the case of Saidi Juma v R [1968] H.C.D. n. 158,

cited by Mr Nasimire, when, in a case of criminal trespass, a dispute arises as to the ownership of the land, the court should not proceed with the criminal charge and H should advise the complainant to bring a civil action to determine the question of ownership. That is exactly what the trial court should have done in the present matter.

For these reasons, the appellant's conviction cannot be allowed to stand. This appeal accordingly succeeds. The I convictions are hereby quashed and the sentence set aside. The complainant is

A advised to seek redress in a civil court. The fine which, I note, was paid, shall be refunded to the appellant forthwith.

Appeal allowed.

B

[zRPz]JOHN NDUNGURU RUDOWIKI v REPUBLIC 1991 TLR 102 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Makame JJA and Kisanga JJA and Mapigano Ag JA

C 18th August, 1991

Flynote

D Criminal Law - Murder - Provocation - Defence of provocation by a threat to kill by witchcraft.

-Headnote

In a trial for murder, the trial judge held that as the appellant had previously heard confessions by the deceased of having killed his victims by witchcraft, the threat by the deceased to cause death of the appellant by witchcraft did E not come as a shock and never put the appellant in fear of any danger to his life or that of his brother when he killed the deceased. On appeal, the justices of appeal found that on previous occasions when the deceased admitted to have killed people by witchcraft he had made no threats to the appellant and thus on the day of the incident the F deceased's threat to kill him was sudden and must have come to him as a shock. Accordingly they quashed the conviction for murder and substituted therefore conviction for manslaughter.

G Held: Although mere belief in witchcraft is no defence to a charge of murder, a threat to kill by witchcraft may in certain circumstances constitute legal defence to that charge.

Case Information

Order accordingly.

H Cases referred to.

1. Yovan v Uganda [1970] E.A. 405.
2. Eria Galikuwa v R. [1959] 18 E.A.C.A. 175.

I E.D. Kisusi for the appellant.

KISANGA AND MAKAME JJA AND MAPIGANO Ag JA
[zJDz]Judgment
Kisanga and Makame, JJ.A. and Mapigano, Ag. J.A.: This is an appeal against conviction for murder and the A sentence of death passed on the appellant by the High Court (Kazimoto, J.) sitting at Songea.
The appellant is a grandson of the deceased man. He (the appellant) has a brother called Danstan who was mentally sick. Both of them were staying together at the appellant's home. On a number of occasions the appellant had B consulted witchdoctors who told him that the deceased had killed a number of people in the family and had caused temporary sterility of his own daughter through witchcraft, and on being asked the deceased confirmed this. C
On the day of the incident the deceased visited the appellant's home to see Danstan, the sick grandson. There were different versions of what transpired there between the appellant and the deceased, but the trial judge found, and rightly so in our view, that there was an exchange of words between them in the course of which the deceased D threatened to kill the appellant by witchcraft, following which the appellant picked up an axe and brutally attacked the deceased with it causing his death instantly.
The appellant's defence was one of provocation through witchcraft, but the trial Court rejected it and convicted him for murder as charged, Mr. Kisusi, the learned advocate, who represented the appellant in this Court, filed a total of E eight grounds of appeal. Essentially his complaint is that the appellant's defence was refused on insufficient grounds.
In dealing with the matter before him the learned trial judge properly directed himself that although mere belief in F witchcraft is no defence to a charge of murder, a threat to kill by witchcraft may in certain circumstances constitute legal defence to that charge and for that view he relied on the decision of the court of Appeal for Eastern Africa in Yovan v Uganda [1970] E.A. 405. He specifically referred to the following passage in that judgment: G

> In considering this case the trial judge to a large extent relied on the principles relating to provocation as explained by this Court in the case of Eria Galikuwa v R [1951] 18 E.A.C.A. 175 and, having held that the substantive act of provocation here H was a threat to cause the appellant's death, said, following that decision, that "a threat to cause death cannot be considered as a physical provocative act". With respect we are of the view that the decision in the Galikuwa case should not be regarded I as laying down a general rule but must be interpreted

A with reference to the facts of that case. There may be cases where a threat to kill taken with the other existing circumstances could amount to legal provocation.

B The facts in that case were that the appellant had suspected the deceased, his step mother, of having killed his two children by witchcraft or poison. On his blaming her, she retorted that he (the appellant) would also die before he could bury the children. Whereupon the appellant attacked her by cutting her with a panga causing her death C instantly. In considering the appellant's defence of provocation the Court said:

This is a difficult case because the act of the deceased in threatening to cause the death of the appellant, presumably by D witchcraft, must be viewed not in isolation but in the context of the appellant's children having just died, the appellant honestly believing the deceased to have been responsible for their deaths, and the deceased knowing of this belief. We are unable to say that the uttering of such threats by the deceased, in these circumstances, could never constitute a wrongful act and thus E legal provocation.

The Court, however, found that the killing was pre-meditated because the appellant, when he armed himself with a panga and went to the deceased's house, intended to kill her.

F In the instant case the trial judge found that the appellant killed the deceased in revenge for the past deaths and misfortune he had caused to member of the family. In his view there was nothing sudden in the threat uttered by the deceased to the appellant because prior to the day of the incident the appellant had heard the deceased confessing G to have caused deaths and misfortune to members of the family. His reasoning comes out rather clearly in the following passage of his judgment:

H The accused was no stranger to the deceased. Since 1980 he had been taking the deceased to witchdoctors who told him that the deceased had caused death by witchcraft and the deceased was alleged to have admitted killing his victims by witchcraft in order to pay or reduce debts. The accused had been hearing these confessions. It was not sudden when the I accused heard the alleged threat that he wanted to kill accused or Danstan in order to reduce debts. ... ... As the threat to

cause death did not come as a shock I hold that the accused was not put in fear of any danger to his life or that of his brother A when he killed the deceased.

With due respect the learned judge misdirected himself on some material point here. There was no evidence that the B deceased had in the past threatened to kill the appellant. The evidence merely shows that the appellant had heard the deceased confessing to have caused deaths and misfortune to some family members, but there is no suggestion that prior to the day of the incident the deceased had threatened to kill the appellant. As far as the appellant is C concerned, therefore, the deceased's threat to kill him on the day of the incident was sudden and must have come to him as a shock. Such a sudden threat has to be viewed in the context of the deceased's previous admissions, in the appellant's presence, to have caused deaths and misfortune to some family members, and the appellant's honest belief in his having the power to do so. Had the learned judge directed himself on these lines we are unable to say D for certain that he would have necessarily come to the same conclusion.

In this respect it is perhaps pertinent to point out here that in killing the deceased the appellant did not follow the deceased; rather it was the deceased who had gone to the appellant's home, and that would tend to incline more to E the view that the killing was in circumstances of provocation rather than premeditation.

The learned judge went to say that even if the killing was in the circumstances of provocation, he would have found F that there was sufficient time for the appellant's passion to cool because

the appellant went to the kitchen, some 23 feet away, where he picked the axe with which he killed the deceased. Mr Kisusi complains that the finding that the kitchen was 23 feet away was not supported by the evidence. This complaint is justified. We could find nothing G in the evidence showing or indicating the distance between the kitchen and the place where the threat was uttered. On the other hand our impression of the evidence is that the kitchen was in the vicinity and that the appellant simply entered there and picked the axe. Even assuming for the sake of argument that the distance of 23 feet was H established on the evidence, such a distance, in our view, was too short and could not provide time for the appellant's passion to cool.

In all the circumstances of the case we are not satisfied that the charge of murder was proved beyond reasonable I doubt. As we have made it abundantly clear, we are increasingly of the view that

A had the learned trial judge properly directed himself as shown above,

he might well have come to a different conclusion. The appellant is entitled to the benefit of that doubt. In the result the appellant's conviction for murder is quashed and the sentence of death set aside. We substitute therefore a conviction for manslaughter contrary to section 195 of the Penal Code.

B The appellant has been in custody since 1989, but the killing which was really brutal was rooted in the belief of witchcraft which ought to be discouraged. This was a bad case of manslaughter which came very near murder, and C which calls for a severe sentence. We think that a sentence of twelve (12) years' imprisonment will meet the justice of the case. It is ordered accordingly.

Order accordingly.

1991 TLR p106

D

[zRPz]IBRAHIM HASSAN AND ANOTHER v REPUBLIC 1991 TLR 106 (HC)

Court High Court of Tanzania - Tanga
Judge Mushi J

E 26 August, 1991

Flynote

Criminal Practice and Procedure - Sentencing - Punishment changed by statute between time of commission of offence F and conviction -Which sentence to impose - Minimum Sentences Act, No. 1 of 1972 -Interpretation of Laws and General Clauses Act No. 30 of 1972.

Constitutional law - Sentencing - Statutory provisions providing for sentence conflict with Article of the Constitution - Effect.

G Criminal Practice and Procedure - Adjournments - Adjournments of a batch of 60 days not allowed unless a certificate by authorized person is produced - No certificate produced - Effect.

-Headnote
The two appellants, convicted of armed robbery and sentenced to thirty years imprisonment each with twelve H strokes of the cane, appealed against both conviction and sentence.
Two issues were looked into by the court. The first was whether an accused person can legally be punished by imposing a heavier sentence than the one provided for at the time of the commission of the offence. The second I issue was whether there is an offence of armed robbery in the Penal Code for which the
1991 TLR p107
MUSHI J
appellants could be convicted and sentenced to 30 years imprisonment. A
Held: (i) Where an Act constitutes an offence, and the penalty for such an offence is amended between the time of the commission of such offence and the conviction therefor the offender shall be liable to the penalty prescribed at B the time of commission of such offence;

(ii) the trial magistrate was not legally justified to punish the appellants with the penalty provided under Act No. 10 of 1989;

(iii) since there is no such offence as armed robbery in the Penal Code, the trial magistrate was wrong in C sentencing the appellants under section 5 (ii) (bb) of the Minimum Sentences Act for armed robbery which offence the appellants were not charged with and convicted;

(iv) since there was no certificate filed in court by the prosecution stating the need and grounds for further D adjournments, after the expiration of 60 days, the court ought to have either proceeded to hear the case or discharge the accused persons. Since the case did not proceed to hearing the trial magistrate ought to have discharged the accused persons;

(v) the appellants were tried for a non-existent offence. The trial was, therefore, a nullity. E
Case Information
Appeal allowed.
No case referred to. F
Mramba, for the appellants
Chingwile, for respondent.
[zJDz]Judgment
Mushi, J.: Ibrahim Hassan - 1st appellant and Abasi Selemani Shemweta - 2nd appellant, whose appeals have G been consolidated, were jointly charged and tried for the offence of robbery with violence (according to the charge sheet) c/s 285 and 286 of the Penal Code. Both appellants were convicted as charged, that is to say under section 286 of the Penal Code. In sentencing the appellant, the learned trial magistrate stated, and I quote: H

Robbery, armed robbery is a threat in this country and the Government is aware of this, that is why it has increased the sentence to 30 years for those who will be found guilty as amended by Act No. 10/89. I
1991 TLR p108
MUSHI J

A The appellants were then sentenced to 30 years imprisonment each and in addition each appellant was to receive 12 (twelve) strokes of the cane. Both appellants are appealing against both conviction and sentence.

At the hearing of the appeal, two important legal issues came up for consideration. One of the legal issues was B specifically raised by the second appellant in his ground No. 12 of his petition of appeal in which he states, and I quote:

That Your Lordship, the offence was committed on 2/12/88 as alleged by the prosecution side, this being before New, Law C Reform (Act No. 10 of 1989 Amended) come into force. The trial learned magistrate contradicted himself when sentencing me appellant without looking the particulars of the offence I am facing.

D Although this ground is not elegantly framed, the meaning is however clear. To my understanding the appellant is raising a question as to whether an accused person can legally be punished by imposing a heavier sentence than the one provided for at the time of the commission of the offence.

E The second legal point is obvious from the conviction and sentence. The appellants were convicted under section 286 of the Penal Code but sentenced to 30 years imprisonment under section 5 (ii) (bb) of the Minimum Sentences Act as amended by Act No. 10 of 1989. The legal issue is whether there is an offence of armed robbery in the F Penal Code for which the appellants could be convicted and sentenced to 30 years imprisonment. Because of the importance of these two legal points, they were argued first.

G The first point to be argued was whether, in view of the fact that the alleged offence was committed on 2/12/88 as stated in the charge sheet, the court was legally justified to punish the appellant by imposing the new sentence of 30 years imprisonment provided for by Act No. 10 of 1989 which sentence is much heavier than the one at the time the offence was committed.

H I will consider first the contents of Act No. 10 of 1989 and when it came into operation. Act No. 10 of 1989 has amended several laws. Our immediate concern is the amendment to the Minimum Sentences Act with regard to the offence of robbery. According to this Act No. 10 of 1989 new Minimum Sentence are provided for, inter alia, I as follows:

1991 TLR p108

MUSHI J

Section 5 is amended: A

(i) by deleting paragraph (b) and substituting for it the following:

(b) where any person is convicted of robbery, the court shall sentence him to imprisonment for a term of not less than B fifteen years;

(ii) by adding immediately after paragraph (b) the following new paragraphs: C

(bb) where any person is convicted of armed robbery, the court shall sentence him to imprisonment for a term of not less that thirty years; if convicted of attempted armed robbery, a term of not less than fifteen years; and if convicted of D assault with intent to steal, a term of not less than five years.

The first thing to determine is when the act came into operation. This Act was enacted by Parliament of the United Republic as The Written Laws (Miscellaneous Amendments) Act 1989,

and it was assented to on 21st of May E 1989 as Act No. 10 of 1989. Section 2 of this Act provides as follows:

The Laws set forth in the first and second columns of the schedule to this Act are hereby amended in the manner specified in the third column. F

It is not specifically stated in the act as to when it should come into operation. Under such situation, recourse must be directed to the Interpretation of Laws and General Clauses Act which is Act No. 30 of 1972. Section 10 of this G act is the one which is relevant to this point and it reads:

10.-(1) When any Act or part of an Act is expressed as having come, or as coming into, operation on a particular day, it shall be deemed to have come or shall come into operation immediately on the expiration of the day next preceding such H day.

(2) Subject to the provision of subsection (1) every Act shall come into operation on the date of its publication in the I

1991 TLR p109

MUSHI J

A Gazette or, if it is provided either in such Act or any other written law that it shall come into operation on some other date, on that date.

B By the authority of this provision, Act No. 10 of 1989 was published in the Gazette as Act supplement No. 2 on 26th May, 1989, must be taken to have come into operation on the day it was published. With regard to this appeal therefore, the offence complained of was committed before Act No. 10 of 1989 came into operation since the C particulars state that the offence was committed on 2nd of December, 1988.

Before the amendment effected by this Act, the Minimum sentence for robbery was seven (7) years imprisonment. The new amendment has increased the minimum sentence to fifteen (15) years imprisonment. It has also provided D for a minimum sentence of 30 years imprisonment for what it is termed Armed Robbery. The question which this court must answer is whether the trial court was legally justified to award the new, and, stiffer sentences as provided for in the amended Minimum Sentences Act for an offence which was committed before the amending law came into E force. In other words which punishment is applicable where the punishment is changed between the commission of the offence and conviction. Again to this question, the Interpretation of Laws and General Clauses has an answer. Section 49 of this act states as follows:

F 49. Where an act constitutes an offence, and the penalty for such offence is amended between the time of the commission of such offence and the conviction therefore, the offender shall, unless the contrary intention appears, be G liable to the penalty prescribed at the time of the commission of such offence.

It is clear, therefore from the above provision, that unless the contrary intention appears, the appellants in this appeal ought to have been punished under the old law because the offence was committed before the amendment even H though the conviction as after the new law had come into operation. This is not, very unfortunately, the end of the matter.

I have deliberately underlined, the clause unless the contrary intention appears - because, apparently, the Minimum I Sentences Act - Act No. 1 of 1972 has a contrary intention. Section 4 of this Act says that:

1991 TLR p111

MUSHI J

4. Where any person is, after the date on which this Act comes into operation, convicted by a court of a scheduled A offence, whether such offence was committed before or after such date, the court shall sentence such person to a term of imprisonment which shall not be less than.

The Minimum Sentences Act then provided for various offences. The operative clause is: B

Whether such offence was committed before or after such date. C

It sounds rather unfair. This means therefore that the provision of section 49 of the Interpretation and General Clauses Act quoted above, does not apply to offences falling under the Minimum Sentences Act. It means therefore D that in this appeal the learned trial magistrate was legally empowered to impose the new penalties provided under Act No. 10 of 1989.

This is not the end of the matter. There is a constitutional provision touching on this particular point. Section 13 (6)(c) of the Constitution of the United Republic of Tanzania reads: E

13(6)- For the purposes of ensuring equality before the law the state shall make provisions:

(c) no person shall be punished for any act which before its commission was not defined as such offence, and no F penalty imposed for any criminal offence shall be heavier than the penalty in force at the time the offence was committed; G

This provision is clear and mandatory. However, according to the above provision the State is required to make provisions to the effect that no law contravenes the provision of section 13 (6)(c) as set out - above. It appears to me that under this provision what the State is required to do is to remove from the statute book any law that is H contrary to the Constitutional provision. Having regard to what I have stated above with regard to section 4 of the Minimum Sentences Act and section 49 of the Interpretation and General Clauses Act, the State has not acted to make the laws conform with the Constitutional requirement. The question which poses itself now is whether the I inactivity on the part of the state makes the

1991 TLR p112

MUSHI J

A provision of this Constitution not enforceable? I am of settled mind that as of now the constitutional provision is enforceable and any provision of the law which is not in conformity with it must be regarded as having no legal effect. This, is in accordance with section 5 (2) of the Constitution (Consequential, Transitional and Temporary B provisions) Act, 1984 - (Act No. 16 of 1984), which made the Fundamental Rights and Duties provided in the constitution enforceable as from March 1988. Before the State Acts to bring all the laws into conformity with the Constitution, the Courts are to construe the existing laws with such modifications, adaptations, qualifications and C exception as may be necessary to bring it into conformity with

the provisions of the constitution. This is provided for under section 5 (1) of the Constitution (Consequential, Transitional and Temporary Provision) Act 1984 which states:

D 3. -(1) Without prejudice to the repeal, revocation or amendment of any existing law, with effect from the commencement of this Act, the existing law shall continue to be the law of Tanzania after the commencement of the Act except in so far as it is amended, modified, repealed or revoked by competent authority or any provision of it expires after the E commencement of the Act. However, the existing law shall be construed with such modifications, adaptations, qualifications and conception as may be necessary to bring it into conformity with the provisions of the Act or as are provided in this Act; and for the avoidance of doubts it is hereby declared that, subject to the modifications, F adaptations, qualifications and exceptions with which the existing law shall be construed and subject also to the other provisions of this Act, the operation of the existing law after the commencement of the Act shall not be affected by the G amendment of the Constitution.

This means therefore that the Minimum Sentences Act and the Interpretation and General Clauses Act must be read H with such modification and adaptation to bring them into conformity with Section 13 (6) (c) of the Constitution. This means therefore that the Clause:

I Whether such offence was committed before or after such date.

1991 TLR p113

MUSHI J

Appearing in section 4 of the Minimum Sentence Act - 1972, and the clause: "Unless the Contrary intention A appears" appearing in section 49 of the Interpretation and general Clauses Act, must be regarded as having no effect in the face of the constitutional provision quoted above. The result is therefore that where an Act constitutes an B offence, and the penalty for such offence is amended between the time of the commission of such offence and the conviction therefore as it is the appeal before this court, the offender shall be liable to the penalty prescribed at the time of the commission of such offence. The learned trial magistrate was therefore not legally justified to punish the appellants with the penalty provided under Act No. 10 of 1989. C

The other legal point is whether there is an offence of armed robbery in the Penal Code for which an accused person can he convicted and sentenced to thirty years imprisonment as provided for under Act No. 10 of 1989 which amended the Minimum Sentences Act as already set out above. The Minimum Sentences Act does not D create offences. It prescribes minimum sentences for already existing laws in various statutes such as the Penal Code. Section 5 (ii) (bb) of the Minimum Sentences Act refer to three district offences namely: E

1. Armed Robbery
2. Attempted armed robbery, and
3. Assault with intent to steal.

The Act clearly states that where a person is convicted of any of the three offences, such person shall be liable to the F Minimum Sentence in respect of each. For armed robbery it is 30 years imprisonment. For attempted robbery it is 15 years imprisonment. And assault with intent to steal it is five years. Reading the provisions of the Penal Code G and the provisions of the

Minimum Sentences Act as amended by Act No. 10 of 1989, apart from the offence of assault with intent to steal provided for under section 288 of the Penal Code which was repealed and replaced under amendments affected under Act No. 10 of 1989, there are no corresponding provisions of Armed Robbery H and Attempted Armed Robbery in the Penal Code.

As stated above, the two appellants in this appeal were charged with the offence of robbery with violence c/s 285 and 286 of the Penal Code. The offence of robbery is created by section 286 of the Penal Code. The offence of I robbery is defined by section 285 of the Penal Code as follows:

1991 TLR p114

MUSHI J

A 285. Any person who steals anything, and, at or immediately before or immediately after the time of stealing it, uses or threatens to use actual violence to any person or property in order to obtain or retain the thing stolen or to prevent or overcome resistance to its being stolen or retained, is guilty of the felony termed robbery.

B This is the only definition there is in the Penal Code for the offence as created under section 286. The appellants were convicted as charged, that is under section 286 of the Penal Code. According to the Act No. 10 of 1989, the C new minimum sentence for the offence of robbery is 15 years imprisonment. The learned trial magistrate was wrong in sentencing the appellants under section 5 (ii) (bb) of the Minimum Sentences Act for armed robbery which offence the appellants were not charged with and convicted. In any event, as already stated, there is no such an D offence of armed robbery in the Penal Code.

There is one small observation which I wish to make. The appellants were charged with robbery with violence c/s 285 and 286 of the Penal Code. According to the definition of robbery under section 285 as set out above, E violence is an ingredient of the offence of robbery. It seems to me that for an offence under section 286 of the Penal Code to charge an accused with robbery with violence, the use of the word violence is superfluous.

F Coming back to the appeal before the court, Mr Mramba - learned advocate for the first appellant has complained in his first ground of appeal, and I quote:

1. That the adjournment of the case by the Trial Court for an aggregate exceeding sixty days and the trial of the case G thereafter without certificates by the Regional Crimes Officer, State Attorney or Director of Public Prosecutions being filed was in contravention to the provisions of section 225 (4) of the Criminal Procedure Act 1985 and therefore unlawful. The trial ought to be nullified.

H Before we proceed further let us see what subsections 4 and 5 of section 225 of Criminal Procedure Act say.

4. Except for cases involving offences under sections 39, 40, 41, 42, 43, 45, 48(a) and 59, of the Penal Code or offences I involving fraud, conspiracy to defraud or forgery,

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it shall not be lawful for a court to adjourn a case, in respect of offences specified in the First Schedule to this Act, A under the provisions of subsection (1) of this section for an aggregate exceeding sixty days except under the following circumstances:

(a) Whenever a certificate by a Regional Crimes Officer is filed in court stating the need and grounds for adjourning B the case, the court may adjourn the case for a further period not exceeding an aggregate of sixty days in respect of offences stated in the First Schedule to this Act. C

(b) Whenever a certificate is filed in court by the State Attorney stating the need and grounds for soaking a further D adjournment beyond the adjournment made under paragraph (a), the court shall adjourn the case for a further period not exceeding in aggregate of sixty days.

(c) Whenever a certificate is filed in court by the Director of Public Prosecutions or a person authorized by him in that E behalf stating the need for the grounds for a further adjournment beyond the adjournment made under paragraph (b), the court shall not adjourn such case for a period exceeding an aggregate of twenty four months F since the date of the first adjournment given under paragraph (a).

5. Where no certificate is filed under the provisions of sub-section (4) the Court shall proceed to hear the case of G discharge the accused in the court where the prosecution is unable to proceed with the hearing save that any discharge under this section shall not operate as a bar to a subsequent charge being brought against the accused for the same offence. H

Learned counsel argued that the appellants were first charged in court on 9th June, 1989. According to the above provisions, the court is empowered to adjourn the case for an aggregate of 60 days without any condition. Any I further adjournment, these must be a certificate from Regional Crimes Officer; State Attorney or the

A Director of Public Persecutions. In each case the certificate must state the need and grounds of adjourning the case. Learned counsel stated that the first batch of 60 days expired on 8th of August 1989. Learned counsel stated that the court adjourned the case without any certificate from the Regional Crimes Officer. Mr Mramba stated that B the learned trial magistrate acted illegally in adjourning the case without such certificate. According to the counsel the magistrate ought to have refused an adjournment and either proceed to hear the case or discharge the accused. Learned counsel said further that the other batch of 60 days elapsed on 8th October, 1989 and the trial magistrate C adjourned the case without a certificate from the State Attorney filed in court stating the need and grounds for further adjournment. The learned counsel submitted that there were two unlawful adjournments which clearly violated the mandatory provisions of section 225 (4) and (5) of Criminal Procedure Act. In that respect the counsel D submitted that the trial was a nullity and the court had no power to hear the case which had violated the mandatory provisions of the law.

The provisions under section 225 (4) and (5) are, unlike many others, so clear that there is no possibility of E misunderstanding its meaning. Subsection (4) states that:

It shall not be lawful for a court to adjourn a case, in respect of offences specified in the First Schedule to this Act, under the F provisions of section (1) of section for an aggregate exceeding sixty days except under the following circumstances.

There are three circumstances under which the court may adjourn the case in excess of sixty days. These are G certificates from the Regional Crimes Officer, State Attorney sand the Director of Public Prosecutions. In case no certificate is filed, subsection 5 provides an answer and it emphatically states:

(5) Where no certificate is filed under the provisions of sub-section (4) the court shall proceed to hear the case or H discharge the accused in the court where the prosecution is unable to proceed with the hearing.

This means that at any stage after the expiration of sixty days, if no certificate is filed to justify more adjournment, the I court can only do one of the two things. The court must proceed to hear the

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case. If the prosecution is not ready to proceed then the court must discharge the accused person. Under the A circumstances, for the trial magistrate to act otherwise such as adjourning the case, such act is declared to be unlawful.

In the appeal before me, since there was no certificate filed in court by the prosecution stating the need and the B grounds for further adjournment, after the expiration of 60 days, the court ought to have either proceeded to hear the case or discharge the accused persons. Since the case did not proceed to hearing, then the trial magistrate ought to have discharged the accused persons.

The Act of the trial magistrate to adjourn the case was an unlawful act. Since the provisions under section 225 (4) C & (5) are mandatory, it means that the continual holding of the accused persons in remand amounted to unlawful detention because legally there was no charge properly before the court for which they could be remanded and subsequently tried. The accused persons, now the appellants, were therefore tried for non existent offence. The D trial was therefore a nullity. The proceedings loading to the trial and conviction of the appellants are hereby declared a nullity and the same are accordingly quashed.

The above finding is enough to dispute appeal. But just in case I am wrong, let me consider whether or not there E was sufficient evidence upon which the conviction could properly he based.

The first appellant, Ibrahim Hassan, lived about 250 paces from the shop of the complainant which was broken F during the night. According to the evidence it was alleged that the first appellant was identified among the group of several people who broke and stole from the complainant. Among the witnesses who claimed to have identified the first appellant was PW 3 - Athumani Amiri. This PW 3 - who was 16 years old, told the court that he was sleeping G in the verandah whom he was awakened by the noise of falling articles which had been placed against the door. PW 3 said that when he woke up he lit a candle which the first appellant kicked and it went off. PW 3 said he identified the first appellant with the aid of the candle

light. Again PW 2 - Mwanaisha Amiri told the court that she heard PW 3 shouting that he was dying. When PW 2 came out she saw many people. PW 2 said that one of the H robbers flashed torch light with which she was able to identify the first appellant. The first appellant was found in his house sleeping after the incident. According to the evidence, it appears that there was a lot of commotion at the scene because PW 2 and PW 3 said that they were beaten. It was a dark night. There is no doubt at all that the I

A circumstances were not easy for identification. Candle light which was put off and kicked as described by PW 2 cannot be held to be reliable means under the circumstances of this case, for unmistaken identify of a person. The violence of identification was not water light. The evidence left some doubts as to the identify of the first appellant at the scene.

B The second appellant was charged because he was found with a Singer Sewing machine which was allegedly to be among the articles which were stolen from the complainant shop. The second appellant admitted to have been found with the sewing machine. The second appellant told the court that the sewing machine was his property and C produced a receipt. The learned trial magistrate found that the receipt produced by the second appellant was not a genuine one and thus rejected it. The question still remains as to whether the sewing machine was conclusively D identified as the one stolen from the complainant shop. There was no documentary evidence such as a receipt from the complainant to prove that the sewing machine was his property. It is recorded that the complainant, who gave evidence as PW 1 - Amiri Kavuki, mentioned the number of the machine as LK 252827 but there is no indication E that he stated the number from his memory which is most unlikely. The same number was mentioned by the 2nd appellant. PW 1 stated that the sewing machine was welded at the bottom and some other visual marks. There is evidence that the complainant was shown the machine when it was recovered from the second appellant's premises. F There was no statement to the Police before the article was found describing the same. It is therefore not certain whether or not the description given by the complainant was after he had seen the machine or that he had known of such marks before. Since both parties, i.e. the complainant and the 2nd appellant claimed ownership of the same G article, a much higher degree of identification is required before the court can confidently find the article belongs to one of the claimants. In this case the evidence adduced by the complainant with regard the identity of the sewing machine was not enough for the court to conclusively find that it was one of the stolen articles from the shop on the H day the shop was broken into. There is nothing more to connect the second appellant with the case.

For the reasons which I have given above, the appeal for both 1st appellant and 2nd appellant is allowed. The I conviction is quashed and the sentence is set aside. The appellants are to be set free unless they are lawfully otherwise held.

Appeal allowed.

[zRPz]ABDULATIFU SALUM v SAADA MOHAMED 1991 TLR 119 (CA)

Court High Court of Tanzania - Dar Es Salaam
Judge Kaijage D/R

30th August, 1991
Flynote
Taxation of costs - Nature of the case, amount involved and the party who bears the costs ought to be taken into account B in taxation of costs.
-Headnote
The judgment debtor the appellant, was condemned by the High Court to pay costs. After failing to appear before the taxing master, the decree holder, the respondent, was allowed to proceed ex parte. The decree holder C submitted that as the appeal involved interpretation of various statutes a sum of 50,000/= as instruction fees is appropriate and justified.
Held: In taxing costs, the taxing master must have regard to nature of the appeal, amount involved and the party D who will bear the costs.
Case Information
Order accordingly. E
No case referred to.
Kessaria, for the Decree holder
Massati for the judgment debtor F
[zJDz]Judgment
Kaijage, D/R:. This ruling is subsequent to the judgment delivered by this court (Mapigano) on 14/6/90 in which the appellant, judgment debtor is these proceedings, was condemned to pay costs. In appeal, the judgment debtor was represented by Mr Massati, learned advocate, and the respondent/decree holder was represented by Mr G Kessaria.
On 2/2/91 when the case came up for taxation, the judgment debtor for no apparent reason did not put up appearance. To this, Mr Kessaria was allowed proceed ex-parte. H
Mr Kessaria has filed a bill of costs entailing a total of 46 items. In his submission he has contended that items 2-20 are according to scale and that they should be taxed as presented.
The sum of 50,000/= has been charged against item No. 1, which is for instructions to oppose the appeal. It is Mr I Kessaria's submission that the charged amount is justified taking into account

A the fact that the grounds of appeal involved the interpretation of various sections of the Rent Restriction Act, Stamp Duty Act, and s.8 of the Registration of Documents Ordinance, cap 117. Mr Kessaria has tendered a list of authorities which he relied on, and which in these proceedings has been marked "A".
B I have had an advantage of going through the record of appeal and I have nothing to fault Mr Kessaria's contention that, the appeal involve the interpretation of various provisions under the

Rent Restriction Act and the Contract Ordinance. This, however, is not to suggest that the appeal itself involved complex issues of law. C Similarly, I am not suggesting that Mr Kessaria did absolutely nothing in preparation of, and in arguing the appeal. Having regard to the nature of the appeal, the amount involved, and the party who will bear the costs, I am of the considered view that the sum of 28,000/= (twenty eight thousand) is reasonable and justifiable under the D circumstances. Thus, the sum of 22,000/= is taxed off on this item.

The amounts charges on items No. 22-47 are not supported by any receipt. This, by implication I have taken note of the fact that the decree holder is, and was a resident of Morogoro Region.

E Therefore, there is no doubt that he, the decree holder, used to travel to and from Morogoro as and when required by the court. What is rather problematic in this aspect, is that exact amount spent as bus fare. Indeed, it is common knowledge that buses to and from Morogoro are running almost every day until late hours of the day. I F have found no justification in Mr Kessaria's submission warranting the award of the amount charged as lodging and boarding. At the same time, one cannot ignore the possibility of a decree holder having spent some nights in Dar es Salaam. On the basis of these brief observations, I am prepared to tax items 22-47 at 50% of the amount charged G against each item.

Finally, I tax the entire bill at 34,425/50 and 27,100/= taxed off.

H Order accordingly.

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A

[zRPz]REPUBLIC v SUBIRA SAID ABDALLA 1991 TLR 121 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Kyando J

11 September, 1991

Flynote

Criminal Practice and Procedure - Adjournment of cases - Applicability of section 225 (4) of the Criminal Procedure Act, B 1985.

-Headnote

In criminal revision proceedings the judge found that the subordinate trial court had adjourned hearing for an C aggregate period exceeding sixty days in a case which is not excepted by the provisions of subsection (4) of section 225.

Held: It was unlawful for the case to have remained pending for more than 60 days in the absence of a certificate filed pursuant to paragraph (b) of subsection (4) of section 225. D

Case Information

Order accordingly. E

Case referred to.

1. Ibrahim Hassan & Another v R. (HC) Criminal Appeal No. 92 & 307/90 Tanga Registry (unreported).

[zJDz]Judgment
Kyando, J.: The records of this case and another were called for by J.K. who then minuted: F
In each of these cases two questions may be considered by the court:

(1) Whether, bearing in mind the wording of s. 225 (4) of the Criminal Procedure Act, 1985, it was lawful for the G subordinate court to adjourn the case for an aggregate period exceeding sixty days.

(2) If the answer to the first question is either negative what order or orders ought to be made by the High Court in respect of the case? H

The records were called for, no doubt, under the provisions of s. 372 of the Criminal Procedure Act (CPA), 1985, and similar provisions in the Magistrates' Court Act, 1984, which empower the High Court to call for and examine I the record of any criminal

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A proceedings before a subordinate court for the purpose of satisfying itself as to the correctness legality or propriety of any finding, sentence or order recorded or passed, and as to the regularity of any proceedings in such subordinate court".

B S. 225(4) CPA referred to in JK's minute provides:

225-(4) Except for cases involving offences under sections 39, 40, 41, 43, 45, 48 (a) and 59 of the Penal Code or Offences involving fraud, conspiracy to defraud or forgery, it shall not be lawful for a court to adjourn a case, in respect of offences C specified in the First Schedule to this Act, under the provisions of subsection (1) of this section for an aggregate exceeding sixty days except under the following circumstances:

D (a) Where a certificate by a Regional Crimes Officer is filed in court stating the need and grounds for adjourning the case, the court may adjourn the case for a further period not exceeding an aggregate of sixty days in respect of offences E stated in he First Schedule to this Act.

(b) Wherever a certificate is filed in court by the State Attorney stating the need and grounds for seeking a further adjournment beyond the adjournment made under paragraph (a), the court shall adjourn the case for a further period F not exceeding in aggregate of sixty days.

(c)... of Public Prosecutions or a person authorized by him in that behalf stating the need for and grounds for a further G adjournment beyond the adjournment made under paragraph (b) the court shall not adjourn such case for a period H exceeding an aggregate of twenty four months since the date of the first adjournment given under paragraph (a)

(5) Where no certificate is filed under the provisions of sub-section (4) the court shall proceed to hear the case or discharge the accused in the court where the persecution is unable to proceed with the hearing save that any I discharge under this section shall not operate as a part to

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KYANDO J

subsequent charge being brought against the accused for the same offence. A

(b) Nothing in this section shall be construct as provising for the application of this section to any proceeding in a subordinate court in relation to any offence triable only by the High Court or triable under the Economic Organized time B Control Act, 1984.

The provisions of subsection (1) of s.225 referred to in subsection (4) relate to the lawfulness of adjournments generally, before/and during the hearing, of cases; the provisions give discretion to courts to adjourn hearing "to a C certain time and place to be appointed".

The offence in the present case is not expected by the provisions of s. 225(4) (supra), for the offence does not fall D under ss. 39, 40, 41, 43, 45, 48 (a) or 59 of the Penal Code. It falls instead under s. 296 (1) of the Penal Code. It is "warehouse breaking". It is also an offence specified under the First Schedule to the Criminal Procedure Act, 1985.

The proceedings of the case show that it was first mentioned before the Court below on 21/12/89. The last date of E the proceedings before the record was called for here is 11/4/91. There is nothing to indicate that any certificates as provided for in s. 225 (4)(a) - (c) (supra) were filed. Before me, Miss Munisi, learned State Attorney, submitted as follows: F

If we go strictly by the law, which is mandatory, it was improper for the case to go on for more than sixty days without complying with the provisions of s. 225(4). It was unlawful for the case to remain pending for so long, i.e. after sixty days. I G suggest that an order be made in terms of s. 225 (5) Criminal Procedure Act.

It is indeed the case that it was unlawful for the case to remain pending for the period from 21/12/89 to 11/4/91 (and it may still be pending up to now) without any certificates as the law requires being filed. And it is surprising H that the clear provisions in s. 225 (4) Criminal Procedure Act are not being followed by subordinate courts. This is because, to my knowledge, this is not the only case in which the provisions have not been being followed, there are several others, (see, for example, Ibrahim Hassan & Another v R I

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A (HC) Criminal Appeals Nos. 92 & 307/90 (Tanga Registry)(unreported). The only reason for failure to follow the provisions may be their unfamiliarity to most magistrates - for they were not there in the now repealed Criminal Procedure Code. It may also be that magistrates do not feel that they (the provisions) are not an efficacious cure for B delays of cases, which I think the purpose for their enactment in view of the provision that a discharge under the section containing the provisions (s.225) "shall not operate as a bar to a subsequent charge being brought against the accused for the same offence". Of course this provision is unencouraging but we, as courts, are duty bound to apply C the law as we find it and or enacted by the legislature. We have no power at all to ignore it.

I am satisfied, as already indicated and as the Republic through Miss Munisi says, that it was unlawful for the case to D have remained pending for more than 60 days in the absence of certificates as already shown. If their certificates have not been filed to date, the subordinate court is directed by this order to immediately proceed hearing the case or, if the prosecution will be unable to proceed with the hearing, to discharge the accused - under s. 225 (5) of the E Criminal Procedure Act, 1985.

Order accordingly.

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F
[zRPz]HARUNA SAID v REPUBLIC 1991 TLR 124 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J

11 September, 1991
Flynote
G Criminal Practice and Procedure - Charge - Substitution of charge after order of acquittal. Criminal Law - Stealing by public servant - Proof of shortage not sufficient - Theft must be proved.
H Legal Representation - Legal Aid - A right - Trial court to inquire on ability of accused to engage counsel - Certifying authority - Circumstances when legal aid required - Legal representation is a constitutional right.
-Headnote
I In an appeal the judge of the High Court found that the trial magistrate had wrongly substituted a charge after acquitting the
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MWALUSANYA J
appellant of all the charges with a charge equivalent to the previous charges and convicted him. The judge also A found that no evidence on theft had been adduced and that the case involved complicated issues of law which required the trial magistrate to forward to the Chief Justice certified copies of proceedings and recommendation that the appellant needed legal aid to conduct his defence. B
Held: (i) Under section 300(1) of the Criminal Procedure Act a substituted conviction may be made for a minor and cognate offence although an accused was not charged with it.
(ii) matters to be borne in mind in substituting a conviction are: C
(a) that the offence substituted must be minor to the offence with which the accused was charged and tried.
(b) that the circumstances embodied in the major charge necessarily and according to the definition of the D offence imputed by the charge, constitute the minor offence also;
(c) that the major charge has given the accused notice of the circumstances going to constitute the minor offence by which the accused is to be convicted, that is, that it must not appear that in substituting the E minor offence, the accused was taken by surprise.
(iii) in a charge of stealing by public servant, it is not enough to prove mere shortage, or merely that the accused was negligent in the performance of his duties as a public servant. There must be evidence that the accused stole the money. F
(iv) where in any proceedings it appears to the certifying authority that it is desirable in the interests of justice that an accused should have legal aid in the preparation and conduct of

his defence or appeal and that his means are insufficient to enable him to obtain such aid, the certifying authority may certify that the accused ought to have free G legal aid. For proceedings in the High Court the certifying authority is the Chief Justice or the Judge of the High Court conducting such proceedings, and in the case of a proceeding before a District or a Court of a Resident Magistrate, the certifying authority is the Chief Justice; H

(v) in two instances it will normally be presumed, that the interests of justice require that the accused should be legally represented at his trial.

(a) where an accused is charged with a serious offence, wherefor a lengthy prison sentence is likely to follow upon a conviction; and I

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MWALUSANYA J

A (b) when the trial is likely to include complicated issues of law like alibi, possession, burden of proof, consent, knowledge, confessions, hearsay evidence, special circumstances or special reasons etc.

(vi) wherever the two instances aforesaid present themselves the trial magistrate is enjoined to conduct an B inquiry to determine the means of the accused person to see if he or she can afford to hire an advocate;

(vii) legal representation is a constitutional right;

(viii) the right to fair hearing under article 13(b)(a) of our Constitution carries with it the right to legal C representation;

(ix) where legal aid is unreasonably refused by the certifying authority or where the trial magistrate has omitted to send the proceedings to the certifying authority for consideration of legal aid, the trial will be held to be a nullity.

Case Information

D Order accordingly.

Ndunguru, for the respondent.

[zJDz]Judgment

E Mwalusanya, J.: The appellant Haruna s/o Said was charged with 59 counts of stealing by a person in the public service c/ss 270 and 265 of the Penal Code Cap. 16 at Manyoni District Court in Singida Region. He was acquitted of all 59 counts. At the end of the day the learned trial magistrate decided to draft his own charge F consisting of one count for stealing by public servant Shs. 85,055/= for which the appellant was convicted. He was sentenced to five years imprisonment. He is now appealing against the conviction and sentence.

G The appellant was a station master with the Tanzania Railways Corporation (T.R.C) and was stationed at Kintinku, Among his duties was to collect revenue for his employer and remit it to the headquarters in Dar es Salaam. On 30/3/1989 a Section traffic Inspector of T.R.C. Tabora Mr Hamisi s/o Chemchem (PW.1) prepared H his report Exh. P.1 after inspecting the account books of the appellant. For November and December 1988 he found that appellant had short remittance of Shs. 85,055/=. And for March 1989 he found that appellant had hard cash short of Shs. 35,600/70. And so on 6/6/1989 appellant was sent to court and get charged with two counts - I first of stealing Shs. 85,055/= and secondly of stealing Shs. 34,600/70.

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MWALUSANYA J
The above charge of two counts was substituted with a new charge of 59 counts on 2/12/1989 when the trial A commenced. The persecution substituted a new charge following a fresh auditing of the account books of the appellant by an Internal Auditor of T.R.C one Mr Daniel Martin Mkasu (PW.3). The said auditor conducted his audit in May 1989. He noticed that on numerous occasions (59 times) the appellant collected sums of money but B recorded loss in the main cash book which is called the Coaching Traffic Summary Book. He found in total Shs. 104,769/50 was stolen for all the 59 counts.
The appellant at the trial contended that he had a shortage and not theft at his place of work. He explained as to C how he incurred losses in his accounts which was not deliberate theft. He said that his employers understand the situation and took it as a shortage and not theft and that is why they allowed him to refund the missing money. Thus on 22/5/1989 he refunded Shs. 30,000/= vide receipt Exh. D.I. There are two letters from his employer Exh. D.2 D and Exh. D.3 which indicate that indeed appellant was allowed to refund the shortage he had incurred which was not regarded as theft. The appellant testified that the practice of requiring an employee to refund the money he or she incurred as shortage, is very prevalent in their institution. He said that he was surprised as to why he was E charged with the theft offences.
What has troubled this court is as to whether the learned trial magistrate was entitled to substitute a conviction of the theft of Shs. 85,055/= when he had acquitted him of all the 59 counts. Admittedly under s. 300 (1) of the C.F.A. F No. 9/1985 a substituted conviction may be made for a miner and cognate offence although an accused was not charged with it. Citing the cases of Ali Mohamed Hassan Mpanda v R.: [1963] E.A. 294 and Dracaku v R.: G [1963] E.A. 363 (C.A.) Mr. Justice Chipeta in his book A Handbook for Public Prosecutors (1978) T.M.P at p. 86 stated that:

The Matters to be borne in mind are:

(i) that the offence substituted must be minor to the one with which the accused was charged and tried; H

(ii) that the circumstances embodied in the major charge necessarily and according to the definition of the offence imputed by that charge, constitute the minor offence also;

(iii) that the major charge has given the accused notice of the circumstances going to constitute the minor offences of I

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A which the accused is to be convicted, that is, that it must not appear that in substituting the minor offence, the accused was taken by purpose.
B Coming to the case at hand I find that the substituted offence is not a minor offence but equivalent to the offence with which appellant was charged. That is, both offences were of stealing by a person in the public service c/ss 270 and 265 of the Penal Code Cap. 16. What is more is that it appears that the appellant was taken by surprise with C this new conviction of stealing by public servant Shs. 85,055/. It will be recalled that the testimony of the auditor

(PW.3) was quite different from the evidence of the Section Traffic Inspector PW.1. The basis of the evidence of PW. 1 was that appellant short remitted money to the headquarters, while PW.3 stated that appellant recorded loss D money in the cash book (Coaching Traffic Summary Book) than he had collected and pocketed the difference. The testimony of PW.1 was the basis of the charge of stealing of Shs. 85,055/= which was later substituted to conform to the testimony of PW.3. What happened is that the trial magistrate was challenging the prosecution as to E why they had substitute the new charge instead of the old charge. But the truth is that a new charge was substituted and appellant directed his efforts to challenge the new charge instead of the old charge. At no time was the appellant given a chance to challenge the old charge. Therefore the conviction for the old charge which was substituted was quite irregular and improper.

F There is another point as to whether theft or a mere shortage of money had been proved. The trial magistrate had inter alia said: "To an employer to give his employee time to refund the money is a mere privilege and it is not a G right". I think the learned trial magistrate missed the point. The issue is not whether the order of refund is a privilege or right, but as to whether the employer by conceding to the refund was suggesting that there was a mere shortage and not theft. Appellant brought evidence at the trial to the effect that he was told by his employer to refund the H missing money and that would be the end of the matter. That inferentially tends to show that the employer conceded that appellant had a mere shortage of money and had not stolen the same. It is important to note that in a charge of stealing by public servant, it is not enough to prove mere shortage, or merely that the accused person was negligent I in the performance of his duties as a public servant. There must be evidence that the accused stole the money. In other words

animus furandi or fraudulent conversion must be proved - see Jackson Sumuni v R: [1967] HDC n. 152 and A Fanuel s/o Kiula v R. [1967] HCD n. 369.

In the case at hand I am not sure if the persecution had proved theft and not merely a shortage of money in the accounts of the appellant. In fact the trial magistrate that much conceded and said at p. 4 of his judgment: B

> What I have noticed in this case is that the accused was not careful in his accounts. The accused failed to manage its accounts properly, that is why there was sometime an excess amount which was not known how it come about. C

That being the case, the trial magistrate should have given the appellant a benefit of doubt by holding that the persecution had not proved theft, but a mere shortage arising as a result of mismanagement of accounts. D

One last point as to whether this trial was a nullity or not for the simple reason that appellant was not granted legal aid for the preparation and conduct of his defence. Counsel for the Republic Mr Ndunguru conceded that this was E an appropriate case in which legal aid should have been granted as it contained complicated issues of law. In fact the learned trial magistrate

should have forwarded the certified copies of the proceedings as well as his recommendation to the Chief Justice that appellant needed legal aid to conduct his defence. F

Under s. 3 of the Legal Aid (Criminal Proceedings) Act No. 21 of 1969 where in any proceedings it appears to the certifying authority that it is desirable, in the interests of justice that an accused should have legal aid in the preparation and conduct of his defence or appeal and that his means are insufficient to enable him to obtain such aid, G the certifying authority may certify that the accused ought to have free legal aid. For proceedings in the High Court the certifying authority is the Chief Justice of the Judge of the High Court conducting such proceeding, and in the case of a proceeding before a District or a Court of a Resident Magistrate, the certifying authority is the Chief H Justice.

In the following circumstances it will normally be procured that the interests of justice require that the accused should be legally represented at his trial.

(a) Where an accused is charged with a serious offence, I

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MWALUSANYA J

A whereof a very lengthy prison sentence is likely to follow upon a conviction e.g. offences of robbery with violence, economic crimes under Act No. 13/1984 e.t.c.

(b) When the trial is likely to include complicated issues of law arising from concepts like alibi, possession, burden of B proof, consent, knowledge, confessions, hearsay evidence, special circumstances or special reasons e.t.c. But each case has to be decided on its merits to find out if it has complicated issues of law or not. For example in Samson v R C [1958] E.A. 681 the E.A.C.A. observed with approval what the Seychelles High Court had said that it was in the interest of justice to grant legal aid on a charge of being in possession of property suspected to have been stole. Seychelles then had a law similar to our Act No. 21/1989

D In these two instances, there is a presumption that the interests of justice require that the accused should be legally represented.

E Therefore whether these two instances present themselves the trial magistrate is enjoined to conduct an inquiry to determine the means of the accused person to see if he or she can afford to hire an advocate. After that the report of the inquiry as well as the certified copy of the proceedings be sent to the certifying authority (the Chief Justice) for F the consideration as to whether legal aid should be granted or not. As to the duty of the certifying authority, the E.A.C.A. In the case of Mohamed s/o Salim v R. [1958] E.A. 202 said at p. 203:

That in such a case the certifying authority should given the matter anxious consideration before deciding to refuse a G certificate for legal aid on the ground of sufficiency of means; that a reasonably liberal interpretation ought to be placed on the section and that in case of doubt the discretion should be exercised in the prisoner's favour. [The certifying authority] has to H exercise its own independent judgment in the matter .... instead of merely accepting the opinion expressed by the magistrate.

Therefore it is clear from the above authority that the certifying authority cannot delegate its responsibilities given out I under s. 3 of the Legal Aid (Criminal Proceedings) Act No. 21/1969, to the

magistrates. The Chief Justice himself has to make a personal decision. A
I wish to emphasize here that the exercise of sending recommendations to the certifying authority by a magistrate, does not depend on the accused having raised or applied for legal aid. The trial court has to raise it on its own motion. It is automatic so to speak, so long as these two instances mentioned above have been not. In that regard B the E.A.C.A. in the Mohamed s/o Salim v R. Case at p. 204 had the following to say:

We would add that we consider that it is the duty of the trial judge or magistrate to ascertain that the question of provision of C legal aid has been duly considered by the proper authority .... in which the accused appears before him unrepresented.

The observations of the E.A.C.A. in the Mohamed s/o Salim Case are relevant though they concerned the D provisions of s. 3 of the replaced Poor Prisoners Defence Ordinance Cap. 21 because these provisions are similar to s. 3 of the Act No. 21 of 1969 except that while Cap. 21 applied to capital offences only, the 1969 Act applies to all serious offences as herein indicated above. E
What is the fate of the case where legal aid was unreasonably refused by the certifying authority or was not considered at all? We get the answer from the judgment of Samatta J. (as he then was) in the case of A. Kalumbeta v R. [1982] T.L.R. n. 328 where at pp.300 - 332 said: F

Legal representation for an accused is a right which is almost universally recognized. In some jurisdictions the right is a constitutional right. In Tanzania the right is provided for in s. 190 of the C.P.C. (now s. 310 of C.P.A.). That right is so jealously G guarded by the law that if an accused is deprived of it, through no fault of his own and through no fault of his advocate and he is in the end convicted, that conviction cannot be allowed to stand on appeal. It must be quashed.

I am only add by remarking that though in 1982 when that judgment was delivered, the right to legal representation H was only statutory right, right now it is Constitutional right incorporated in the Constitution Vide Act No. 15/1984. The right to a fair hearing under Art. 13 (6) (a) of our Constitution carries with it the right to a legal representation. I

A Therefore where legal aid is unreasonably refused by the certifying authority or where the trial magistrate has omitted to send the proceedings to the certifying authority for consideration of legal aid (in the two instances mentioned above) the trial will be held to be a nullity. There is no question as to whether the irregularity has B occasioned a miscarriage of justice or not; the point is that the irregularity is to fundamental that the trial is automatically a nullity. In fact that is what the Tanzania Court of Appeal had to say in the case of Laurent s/o Joseph v R. [1981] T.L.R. n. 351 where Makame J.A. said at p. 352:

C We cannot say that if he had been legally represented a different picture would not possibly have emerged.

That is the point. This is because the quality of justice we got when an accused is not legally defended is D bus-standard.

It is not every man who has the ability of defend himself on his own. He cannot bring out the points in his own favour or the weaknesses in the other side. He may be tongue-tied or nervous, confused or wanting in intelligence. E He cannot examine or cross - examine witnesses intelligibly. The quality of justice, surely improves where there is legal representation.

In the case at hand I was prepared to allow the appeal on the simple ground that the trial was nullity because the F appellant was denied of his legal right to legal representation. The denial of the right to legal aid is indeed reprehensible and it boggles my mind as to why this right has not been exerted since 1969 when Act No. 21/1969 was enacted. Could it be so because there was no one to champion the rights of the poor? Under s. 190 of the C.P.C. (new s. 310 of the C.P.A.) there is a statutory right to legal representation. The courts have decided to G construe that section to the disadvantage of the poor. Various cases have held that, that section means that once a accused person has availed himself the services of an advocate (that presupposes that an accused person has means) he should not be deprived of the right to be defended by counsel through no fault of his or his counsel. H These cases championing the cause of the haves, are numerous and a few of them are: J.A. Haji v R. : [1947] 1 T.L.R. (R) 299 (Wilson J.); Mugoma v R: [1957] E.A. 555 (C.A.); Joshua Nkonoki v R.: [1978] L.T.R. n. 24 I (Mnzavas J.), D.P.P. v Rugaimukamu: [1982] T.L.R. 139 (Rubama J.) and Alimasi Kalumbeta v R.: [1982] T.L.R. n. 329; and the Jamaican case of Rebinsen v R. : [1986] L.R.C. (Const.) 405 (by Privy Council).

1991 TLR p133

I looked for a decision which would held that a statutory right of legal representation has been infringed where an A accused person is deprived of the right to be defended by counsel through no fault of his or his counsel because of his poverty (in that accused could not afford to hire one) and the court did not on its own motion consider whether to grant legal aid or not, but I could not find any such decision. If anything that statutory right was interpreted in B favour of the haves and the have nots were ignored. I hope this judgment comes to the rescue of the indigent accused persons.

Be that as it may, for the reasons given herein above, the appeal succeeds. The conviction is quashed and the C sentence and compensation order are set aside. The appellant should be released forthwith, unless held for any other offence.

Order accordingly. D

1991 TLR p133

E

[zRPz]MOHAMED NASSORO v ALLY MOHAMED 1991 TLR 133 (HC)

Court High Court of Tanzania - Dodoma

Judge Mwalusanya J

19 September, 1991

Flynote

Civil Practice and Procedure - Summons - Service - Effect of improper service of summons. F

-Headnote

The appellant had an ex-parte judgment passed against him by Singida Resident Magistrates' Court allegedly for failing to appear on the hearing date. On appeal the appellant contended that he was never served with notice. The G High Court found that the appellant was not properly served with summons as the summons in question were not the proper documents and were not attached to the plaint. Also, service of summons was not effected by the proper office of the court.

Held: As there was no proper service, the trial magistrate should have set aside the ex-parte judgment as of right. H

Case Information

Appeal allowed. I

No case referred to.

1991 TLR p134

MWALUSANYA J

[zJDz]Judgment

A Mwalusanya, J.: The appellant Mohamed s/o Nassoro had an ex-parte judgment passed against him for Shs. 10,000/= by the Singida R.M.'s Court. The suit proceeded ex-parte when allegedly the appellant failed to appear on the hearing date (25/2/1988), while the respondent Ally s/o Mohamed had appeared.

B At the hearing of the appeal and in his memorandum of appeal the appellant has contended that he was never served with notice for appearing on 25/2/1988. He said that the ten cell leader had lied when he ordered on a letter that appellant had refused to accept serve of summons.

C It is my finding that the appellant was not properly served with the summons, and that much the respondent has conceded during the hearing of the appeal. First the "summons" in question are not the proper documents, but it was only a hand-written piece of paper, written and signed by the magistrate requiring the appellant to appear in D court on 25/2/1988. It was not even attached with the plaint. Secondly it was not served on the appellant by a proper officer of the court (the process server). According to the respondent it was him who had taken the "summons" to the ten cell leader for service on the appellant. That was highly improper and the appellant was right E to refuse service in the circumstances.

According to Order 5 rule 16 of the Civil Procedure Code, 1966 it is only the proper officer of the court who has to effect service of summons. And if the party refuses to accept service, the process server has to leave a copy of the F summons with him and return the original to the court together with an affidavit stating that the person upon when he served the summons refused to sign to acknowledge service.

As the ten cell leader was not a proper officer of the court he had not and could not have made an affidavit as to G how to effect service. In short there was no proper service, and respondent that much has conceded.

As there was no proper service, the trial magistrate should have set aside the ex-parte judgment as of right. In the event the appeal is allowed. The order dismissing the application for setting aside the ex-parte judgment is set H aside. I also set aside the ex-parte judgment that was passed by the trial court. The suit should proceed to trial. Each party to bear its own costs of this appeal.

I Order accordingly.

1991 TLR p135

A

[zRPz]SHOMARY ABDALLAH v ABDALLAH HUSSEIN AND HASSAN RAMADHANI 1991 TLR 135 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Kyando J

20 September, 1991

Flynote

Administration of Estates - Jurisdiction - Probate and administration matter - Resident Magistrate not specifically B appointed as district delegate hears probate cause - Effect.

-Headnote

This probate cause was heard by a Resident Magistrate in the District Court of Ilala at Kisutu in Dar es Salaam. C The appellant having been dissatified by the decision of the District Court appealed to the High Court of Tanzania. After making the necessary enquiries the High Court judge noted that the learned Resident Magistrate was not a District Delegate according to the provisions of section 5 of the Probate and Administration Ordinance of 1961. D For this reason the court found that he lacked the jurisdiction to entertain the matter.

Held: As the learned magistrate lacked jurisdiction the proceedings are nullity. E

Case Information

Order accordingly.

[zJDz]Judgment

Kyando, J.: This matter, a probate cause, was heard by a Resident Magistrate (Mrs Msuya - RM) in the District F Court of Ilala, at Kisutu, Dar es Salaam. It was initially filed in the Primary Court at Kariakoo, Dar es Salaam and a grant made at as the Resident Magistrate indicates in her judgment, it was later discovered that the grant was a nullity for lack of jurisdiction. The record of the case was then transferred to the District Court where the learned G Resident Magistrate heard it.

The appellant was dissatisfied with the decision of the District Court. He filed this appeal in this court. Before hearing the appeal I wanted to know if Mrs Msuya, R.M., was a District Delegate in terms of s. 5 of the Probate H and Administration Ordinance 1961. For this purpose I directed the Registrar to send a note to Mrs Msuya to assertion. The Registrar did so and Mrs Msuya replied that she has no instrument of appointment as a District Delegate. By this, of

course, I understand her to mean that she has not been appointed a District Delegate under s.5 I of the Ordinance.

1991 TLR p136

KYANDO J

A Section 5 provides that the Chief Justice May, from time to time appoint such resident magistrates as he thinks fit to be District Delegates. In the definition part of the Ordinance, a District Delegate is defined as "a resident magistrate appointed a District Delegate under section 5". Under s.5 (2) it is provided as follows:

B 5 - (2) A District Delegate shall have jurisdiction in all matters relating to probate and administration, with power to grant probate and letters of administration, if the deceased, at the time of his death had his fixed place of abode within the area for C which the Delegate is appointed -

(a) in non-contentious cases;

(b) in contentious cases, if the Delegate is satisfied that the gross value of the estate does not exceed fifteen thousand D shillings, or the High Court authorizes the Delegate to exercise jurisdiction in such circumstances as are specified in subsection 3.

Then, under subsection 4 of s.5, "A District Delegate shall not have jurisdiction to exercise any of the powers herein E expressly conferred on the High Court".

The provisions of s. 5 are under Part II of the Ordinance which is headed "Jurisdiction in Probate and Administration." Under s. 3, it is provided that the High Court shall have jurisdiction in all matters relating to probate F and administration of deceaseds' estates, with power to grant probates of wills and letters of administration to the estates of deceased persons and to alter or revoke such grants. Then below the High Court some, limited, jurisdiction is conferred on District Delegates (per s.5 supra) and District Courts (in relation to small estates). G According to the scheme of the Ordinance, therefore, general jurisdiction under it is conferred on the High Court. Districts Delegates and District Courts have only limited jurisdiction - as provided for the Ordinance itself. Did the resident Magistrate then have power to hear this matter? As I have indicated above, she did not have an H appointment as a District Delegate. Under the Ordinance exercise by resident magistrates of powers relating to probate and the administration of deceaseds' estates is not automatic. These magistrates have to be appointed District Delegates under s.5 in order to be vested with such powers. It is like extended powers under the Criminal I Procedure Act, 1985, it is not that every resident

1991 TLR p137

magistrate can exercise such powers. It is only those who have been specifically invested with the powers who can A exercise them.

The learned resident magistrate in this case, having not been appointed a District Delegate, had no jurisdiction to hear it, I am aware, of course, that the Second Schedule to the Magistrates' Courts Act, 1984, lists the Probate B and Administration Ordinance as one of the laws in respect of which under s. 41 of the Magistrates' Courts Act, Courts of resident magistrates or civil magistrates have power to exercise jurisdiction. Under s. 41' and the Second Schedule it is indicated that these courts or magistrates have jurisdiction to administer the whole Ordinance,

i.e. the C Probate and Administration Ordinance. In view, however, of the clear provisions of s.5 of the Ordinance itself, it is obvious to me that apart from the High Court, resident magistrates' courts or resident magistrates as such do not have such general powers to administer the Ordinance. Their powers are only to the extent as limited by s.5 and no more. The appearance of the Ordinance under the second schedule must have been oversight on the part of the D drafters of the schedule. The learned magistrate, as already held, lacked jurisdiction in this matter. The proceedings which she held were, it follows, null and void and I so declare them here I quash and set them aside. Whoever, amongst the parties wishes to pursue this matter, he should do so by instituting it in the court with powers or E jurisdiction to entertain it. No order as to costs.

Order accordingly. F

1991 TLR p137

G

[zRPz]SALUM S/O ATHUMANI v REPUBLIC 1991 TLR 137 (HC)

Court High Court of Tanzania - Tabora

Judge Korosso J

2 October, 1991

Flynote

Criminal law - Bona fide claim of right - When the defence of bona fide claim of right can be invoked. H

-Headnote

The appellant was charged with and convicted of the offence of cattle theft c/s 268 and 265 of the Penal Code. During trial he admitted taking the controversial goat which he alleged belonged to his uncle named Athuman s/o Abdallah - the complainant in the case. I

1991 TLR p138

A Held: (i) In the absence of any colour of right close relationship between an accused and the complainant is not enough ground for the defence of bona fide claim of right;

(ii) there was sufficient evidence to show that the appellant took the goat of his uncle without the latter's permission or authority.

Case Information

B Appeal dismissed.

No case referred to.

[zJDz]Judgment

C Korosso, J.: The appellant was charged with and convicted of the offence of stealing cattle c/s 268 and 265 of the Penal Code. He was sentenced to a term of 5 years imprisonment. He is appealing to this Court against that verdict and sentence.

D The appellant had admitted before the Lower Court of taking the goat belonging to his uncle, one Athuman s/o Abdallah (PW.1). The only excuse and defence was that the goat belonged to his uncle with whom he had been living at the time of the event.
This appeal is bound to fail.
F As the law stands today in this country, the relationship that exists between an uncle and his nephew, or a father and his son, doesn't 'peruse' property. Hence, if either takes the other's property without the other's permission or authority, one thereby commits a criminal offence punishable by a fine or imprisonment.
The appellant, having taken a goat belonging to his uncle without the latter's permission or authority, he cannot take shelter behind the provision of section 9 at the Penal Code.
Appeal dismissed.
1991 TLR p139
H
[zRPz]SIMON ELINA MBAGA & ANOTHER v REPUBLIC 1991 TLR 138 (HC)

Court Court of Appeal of Tanzania - Arusha
Judge Nchalla J

2nd October, 1991
Flynote
Criminal Practice and Procedure - Sentencing - Armed robbery - Sentence of fifteen years imprisonment illegal - I Sentence of not less than thirty years imprisonment mandatory.
1991 TLR p139
NCHALLA J
In trial for armed robbery the trial magistrate convicted the appellants and sentenced them to fifteen years A imprisonment, ordered them to pay compensation for injuries to the victim, and to make good the items stolen. The Judge, on appeal found that the conviction was proper but found the sentence of fifteen years imprisonment to be illegal. B
Held: The sentence of fifteen years imprisonment imposed by the trial court was inadequate and in disregard to the mandatory provisions of section 5(b) of the Minimum Sentences Act, 1972 as amended by Act No. 10 of 1989, and therefore, illegal. C
Case Information
Appeal dismissed.
[zJDz]Judgment
Nchalla, J.: Simon Elina Mbaga filed to this court Cr. Appeal No. 75/91, while Sifuni Said Ernest filed Cr. Appeal No. 76/91. Both appeals arise from the decision of Mwanga District court in its original criminal case no 203/90 in D which both appellants were jointly charged with armed robbery c/ss 285 and 286 of the Penal Code, Cap. 16 whereupon they were convicted of that offence, and were then each sentenced to 15 years imprisonment. They E were also ordered to pay 1000/= compensation each for the injuries P.W.1 sustained at the hand of the appellants.

The appellants were further ordered to make good the items they robbed from the complainant a description of which is aptly given in the charge sheet.
The appellants are appealing against conviction, sentence and the order of compensation. Both appellants did not F wish to be present at the hearing of their appeals, and they did not engage counsel to represent them on appeal. So, the appeal have been heard in the absence of the appellants.
As the two appeals arise from one and the same original case, it was ordered that the same be consolidated and that G they be heard together. The two appeals have therefore been heard in consolidation.
I will refer to the appellants' grounds of appeal in general not seriatim. The appellants argued that the evidence of H P.W. 1 and P.V.7 is contradictory.
They argued that while P.W.1 said that her children escaped from the house through the window, P.W.7 the daughter of P.W.1 said that she escaped through the rear door of their house. The appellants further urged that I P.W.1 the victim of the robbery in this case could not have properly identified her assailants as she said
1991 TLR p140
NCHALLA J
A that she fell unconscious when she was cut with a panga. The appellants further urged that the evidence of P.W.4 and P.W. 6, who claim to have seen the appellants near the house of P.W. 1 after P.W.1 had been attacked and had been taken to hospital, is not credible and the same is contradictory. Simon Elina Mbaga (whom I will B hereinafter refer to as the first appellant) argued that the evidence by P.W.4 that he cut him (appellant) with a panga at the scene on the material night is not established, as P.W.4 did not identify the person whom he claims to have cut with a panga right at the scene after P.W.1 was attacked. Moreover, the first appellant charged that the description C of the shirt, which it is alleged the first appellant wore on the material night and place, is different from the description of that shirt given by P.W.1, P.W. 3 and P.W.7. P.W.4 said it was a T-Shirts, while the other D prosecution witnesses said it was a white shirt. "This is a marked contradiction", first accused urged.
As to the evidence of P.W. 3, the appellants urged that evidence is not true. The appellants queried why P.W.3 did not identify in court the panga which it is alleged the appellants borrowed from her on the night in question, and E which it is alleged the appellants used in attacking P.W.1 and that the same was recovered from the house of the first appellant.
Mrs. Lyimo, learned State Attorney, gave a reply in support of the appeals. She submitted that the issue of identification of the appellants by P.W.1 and P.W. 7 at the scene during the alleged robbery was not resolved. Mrs F Lyimo urged that P.W.1 was too frightened to be able to identify her assailants.
After a close scrutiny of the evidence on record which evidence, I admit, was inelegantly recorded, and after a careful consideration of the trial Magistrate's evaluation and assessment of the available evidence and his reasoning G and findings on that evidence, I am unable to agree with Mrs Lyimo and the appellants that the trial Magistrate arrived at a wrong conclusion in this case. I am highly satisfied that the trial Magistrate properly considered the H evidence and also

properly directed himself on that evidence and the law relevant thereto and ultimately rendered a sound decision.

As the trial magistrate rightly found, the issue of identification of the appellants at the scene during the commission of the robbery in this case was effectively resolved. The evidence of P.W.1 and P.W.7 on identification of the I appellants at the scene and during the incident is watertight, and the same meets the test set by the

1991 TLR p141

NCHALLA J

court of Appeal of Tanzania in its decision in the case of Waziri Amani, 1980 TLR .250. The incident took place A at night, but in the early hours of night at 8.30 p.m. when ordinarily most people in the village are still awake. P.W.1 was still preparing food, that is, dinner, in her house where her children were too. Suddenly, the door of her house was kicked open, and the two appellants stormed the house. The appellants were accompanied by another B person called Kilavo who was killed in another robbery incident after this robbery took place, and so he was not charged in this case jointly with the appellants. P.W.1 like P.W.7, properly saw and identified the assailants from a lamp which was then on in the house where P.W.1 was cooking food. P.W.1 knew all the assailants before, as they C happened to live in the neighbourhood. The assailants had not disguised themselves in any way. Moreover the first appellant spoke to P.W.1 before attacking her. It was from very close range, that is, right at the spot where P.W.1 was cooking food. P.W.1 described the appellants' attire. The first appellant wore a white shirt, while the D second appellant wore a red hat and a red jacket. The first appellant was holding a Panga. The attack lasted for a considerable time.

The description given by P.W.1 and P.W.7 of the appellants' attire during the robbery tallies with the description of E that attire given by P.W.3 who is an independent witness whose testimony cannot, and was not, faulted in any way. P.W.3 had met with the appellants on the material night at about 7.00 p.m. when the appellants went to her house to borrow a panga, and P.W.3 indeed, gave her panga to the appellants who then left. An hour or so later F P.W.3 heard the alarm from P.W.1's house when she was attacked and robbed of her money 20,000/= and other property. It was in the same village.

After P.W.1 was cut with a panga and after she had been taken to hospital P.W.4 and P.W.6 remained hiding near G P.W.1's house. As they were hiding there they saw two persons near P.W.1's house. When they approached them those two persons started fleeing. P.W. 4 who was armed with a panga threw it on one of these two fleeing persons and hit him with that panga. Nevertheless these two persons ran on and disappeared in the bush. P.W.4 H and P.W. 6 looked about at P.W.1's house and they found a white - blood - stained shirt.

On the same night and about the same time when P.W.1 reached the hospital on the material night, the 1st appellant also arrived at the same hospital and had his hand cut with some sharp instrument which could have been a panga, I probably the panga

1991 TLR p142

NCHALLA J

A which P.W.4 had thrown at a person whom he did not properly identify at the scene. The first appellant alleged that he was cut with a panga by a person he did not identify when he was going to P.W.1's house in answer to her alarm she had raised on the material night. This evidence by the first appellant cannot be true. Why did he flee B when he was cut with the panga. He should have raised an alarm and should have complained immediately to his fellow villagers who would have supported his version in this case. To the contrary the first appellant makes a bare assertion which is not supported by the circumstances of this case.

C When the 2nd appellant's house was searched the red hat and red jacket were found which resemble to those which the 2nd appellant wore on the material night as described by P.W.1, P.W.3 and P.W.7.

D On the whole the evidence of P.W.1 and P.W.7 who are eye witnesses to this robbery, coupled with circumstantial evidence from P.W.3, P.W.4 and P.W.6 together with the exhibits tendered namely exhibits C nd D has established the charge of robbery on both appellants beyond any shadow of doubt and the conviction that was E entered on them by the trial subordinate court is well founded and I upheld it. The contradictions in the prosecution case are not at all fatal.

As to the sentence of fifteen years imprisonment that was imposed by the trial court, the same, in my view, was F inadequate and in disregard to the mandatory provisions of section 5 (b) of the Minimum Sentences Act, 72 as amended by Act No. 10/1989. That section now reads, "5 (bb) where any person is convicted of armed robbery, the court shall sentence him to imprisonment for a term of not less than thirty years etc."

G No doubt the type of robbery that the appellants committed in this case is armed robbery. They were armed with pangas which they used to cut P.W.1 successively and on several parts of her body as evidenced by the doctor's report on PF 3 (Exh. A). Consequently, I set aside the illegal sentence of fifteen years imprisonment that was H imposed on each appellant, and I substitute therefor a sentence of thirty (30) years imprisonment on each appellant and I confirm that sentence. The order of compensation is proper and I uphold the same.

The appeals lack substance and merit, the same are dismissed in their entirety.

I Appeal dismissed.

1991 TLR p143

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[zRPz]MADUHU MASELE v REPUBLIC 1991 TLR 143 (HC)

Court High Court of Tanzania - Tabora

Judge Katiti J

2nd October, 1991

Flynote

Criminal Practice and Procedure - Pleas - Plea of autrefois acquit - By whom should the plea be made - At what stage - B On whom does the onus lie -The quantum of proof required - S. 137 Criminal Procedure Act 1985.

-Headnote

The appellant, Maduhu Masele, was indicted and prosecuted before the Maswa District Court for the offence of C cattle theft c/s 265 and 268 of the Penal Code, Cap. 16. He was convicted and sentenced to six years imprisonment.

Aggrieved with conviction and sentence the appellant preferred an appeal in which, while protesting his innocence, D he also raised the plea of autrefois acquit.

Held: (i) It is the duty of the accused to plead autrefois acquit in order to derive the advantage or benefit thereof;

(ii) an accused person can raise the plea at any time, either as a plea in the bar to the second prosecution, E or, at any stage in the proceedings, before the closure of the defence case;

(iii) it is the general rule that in pleas of autrefois acquit or convict, the burden of proof, (onus probandi) lies on the party who asserts the affirmative of the issue, or question in dispute. F

Case Information

Appeal allowed.

Komba, for the respondent G

[zJDz]Judgment

Katiti, J.: Before Maswa District Court, was Maduhu Masele hereafter to be called the appellant, charged with the offence of cattle theft c/s 265 and 268 of the Penal Code Cap. 16. At the end of the day, the said appellant was convicted as charged, and sentenced to six years imprisonment. Aggrieved, the said appellant is appealing against H conviction. While the appellant maintained that he never stole the cattle, he pleaded autrefois acquit - that having been previously acquitted, in RM's Criminal Case No. 107/1987, the certified copy of proceedings of which, he tendered as Exh. D1, he contended, he could not be re-charged or tried again, in Cr. Case 149/1989, on the same I facts, for the same offence.

1991 TLR p144

KATITI J

A The evidence fluidish as it appears, is as follows. The complainant, PW1 Kushoka Butondo, testified to have discovered theft of his four heads of cattle, that each had a KB brand mark - the abbreviation of his name, above mentioned. A year after, PW1 claimed that, the child of the Francis Mangale was found with one of the said cattle, and the Kraal of one Magweshi John, we only learn from one Deshi, who did not give evidence, that the said cow B had been taken to him "by some people", there being no mention of the appellant. But cross - examined by the appellant, the same PW1 said, "I found it in the heads of the Police". But on heels, was PW.2 Raphael s/o C Makwase, who told the court, that, on 17/10/1986 the appellant having attracted suspicion by offering to sell a cow, he had in his possession at Shs. 4,000/=, the Police, in particular PW3 No. C 5180 PC ALEX, was informed and hence the arrest of the appellant, on the 28/12/1988. The appellant defending himself, maintained that one woman D having entrusted

him with her cattle, he was arrested, prosecuted, but acquitted. He added, that, this case involves the same subject matter, same witnesses and dates, as were in the prior, or previous case, vide which he was acquitted, hence the plea. He tendered to certified copy of the previous proceedings as Exh. D1. The above E evidence constituted the foundation of the conviction, in the present case.

With respect, testing the foundation on which the conviction is built, I get irresistibly the conviction, that the evidence in its own element is quite fluidish and tenuous. If one Francis Magweshi's child, was found in possession of the F cow, in the kraal of one Magweshi, how come, that none of them gave evidence, is tantalizing in the direction of confusion, and is incomprehensible. Again one Deshi, who too did not give evidence, emerged from no where, G although he is reported by PW1, to have said that the cow "was taken to him by some people". The appellant curiously was not mentioned by this Deshi, nor by PW1 - of course the statement by the said Deshi, being hopelessly hear-say-adding no valuable contribution, to the case.

H Coming to the testimony of PW2, that on the 17th day of October, 1986 the appellant offered to him, a cow for sale, I find myself in an embroiling quagmire, unlike the trial Magistrate. For, if as per PW1 Kushoka Butondo, his four heads of cattle were stolen on the 20/10/1986, the appellant could not have offered one of them for sale on the I 17/10/1986, as this was before the event - theft of the cattle. But curiously, PW3 No. 5180 PC ALEX told the Court, that he arrested the appellant while in possession of the cow on the

28/12/1988, posing a question that, if PW3 Alex received a report from PW2 on the 17/10/1986, the day appellant A is alleged to have offered the cow to PW2 for sale, how the arrest of the appellant, could have taken place on the 28/12/1988, and not on the same 17/10/1986, is derogating from the truth. From the above, I find myself satisfied, that the quality of evidence on recorded, is not capable of proving the charge beyond reasonable doubt, and in my B view, no reasonable criminal justice system, can found conviction on such evidence.

It is without prejudice to the generality of the above, good dutiful to remember, that the appellant did traversely plead, autrefois acquit - that he had been previously tried and acquitted, for the same offence, by the very Court - C pleading in bar to subsequent criminal prosecution. Obviously this plea softly lands us on the provisions of Section 137 of the Criminal Procedure Act 1985, that from the top of the hill, proclaims thus: D

> A person who has once been tried by a court of competent jurisdiction for offence and convicted, or acquitted of such offence, shall while such conviction, or acquittal, has not been reversed or set aside, not be liable to be tried again, on the same facts E for the same offence.

The above provisions do proclaim a principle, that places a bar, or an injunction against prosecuting a person, who has previously been convicted/acquitted, by a court of competent jurisdiction, again, on the same facts and for the F same offence, unless the said previous conviction, or acquittal, has been reversed, or set aside. The governing principles in so far as the pleas of autrefois acquit/convict, judicially educative and persuasive were pictorially considered

and announced, by no less a judicial brain than, Lord Morris of Borth - Y - Best, in the case of G Connelly v DPP, [1964] 2 All E.R. 401, at page 412 thus:

I pass, therefore to a consideration of the questions which arise concerning the plea of autrefois acquit. In giving my reasons H for my view that the direction given by the learned Judge was entirely correct. I propose to examine some of the authorities of, and to state what I think, are the governing principles.

In my view both principle and authority establish: (i) that a man cannot be tried for a crime in respect of which he has I

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KATITI J

A previously been acquitted, or convicted; (ii) that a man cannot be tried for a crime in respect of which he could on some previous indictment, have been convicted, (iii) that the same rule applies, if the crime in respect of which he is being charged is in effect the same, or is substantially the same, as either the principal, or a different crime, in respect of which, he has B been acquitted, or could have been convicted, or has been convicted; (iv) that one test, whether the rule applies, is whether the evidence which is necessary to support the second indictment, or whether the facts which constitute the second offence would have been sufficient to procure a legal conviction, on the first indictment, either,as to the offence charged, or as to the C offence, of which on the indictment, the accused could have been found guilty, (v) that the test must be subject to the provision, that the offence charged in the second indictment, had in fact been committed at the time of the first charge, (vi) that an a plea of autrefois acquit or autrefois convict, a man is not restricted to a comparison between the later indictment, D and some previous indictment, or the records of the court, but that he may prove by evidence, all such questions as to the identify of persons, dates and facts, as are necessary to enable him to show, that he is being charged with an offence, which is either the same, or substantially the same, as one in respect of which he could have been acquitted, or convicted, or as E one, in respect of which, he could have been convicted, (vii) that what has to be considered, is whether the crime, or offence F charged, in the later indictment, is the same, or is in effect, or is substantially the same, as the crime charged, (or in respect of which there could have been a conviction), in a former indictment, and that it is immaterial that the facts under G examination, or the witnesses being called in the later proceedings, are the same as those in some earlier proceedings;

The principles enunciated in the above case on and about pleas of autrefois acquit/convict, have found their way H into our statute book - as demonstrated by section 137 of the Criminal Procedure Act 1985 above. What therefore for our purposes is principally deducible from the cited provisions are, - one that a person cannot be tried again for the crime in respect of which he has previously been acquitted or convicted, by a court of competent jurisdiction, I unless such acquittal or conviction, has been reversed or set aside, two, whether the plea of autrefois acquit/convict, applies, the test of

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whether, the evidence which is necessary to support the second prosecution, or whether the facts that constitute the A second, or subsequent offence, would have been enough to procure a legal conviction or acquittal, on the first prosecution i.e. that the offence charged in the second indictment had in fact been committed at the time of the first charge. B

The autrefois convict/acquit may in my view be proved, or established by evidence rendering comparison between the later indictment and some previous indictment possible i.e.

(i)Comparison of charges or indictments, where possible, by the trial court on the invitation and initiative of the C accused.

(ii)By tendering a certificate of conviction, or as the case may be, of acquittal, relating to that offence, provided the person named in the certificate, as having been convicted or acquitted, of the offence, is the person whose D conviction or acquittal of the offence, is to be proved.

(iii)By tendering and reference to court records, by the clerk of the court, or another officer having custody of the record of the court, where such conviction or acquittal took place, - with sufficient proof of the identity of the person convicted, or acquitted. E

(iv)By adducing such other evidence showing all such questions as to identify of the accused, date, and facts as are necessary to enable him to show that he is being charged with an offence, which is either the same or substantially the same, as the one in respect of which he has been acquitted or convicted. F

The above principles, do pose questions like (i) by whom should the plan of autrefois acquit be pleaded, obvious though the question seems to be, (ii) at what stage should such plea be staged, (iii) on whom does the onus lie, (vi) and the quantum of proof thereof. Considering the above seriatim, and considering that the fundamental principle G here, is that a person is not be prosecuted twice for the same offence, and possibly, the latter being inherently within the knowledge of the accused, then it is the accused person who should plead the same, in order to derive H advantage or benefit there from. Giving serious thought to the question as to the stage, in the proceedings, when the plea could be staged, I think, the question should be approached, with liberality, and in my view the accused person may raise the plea at any time, either as a plea in the bar to the second prosecution, or, at any stage in the I proceedings, before the closure of the defence case. And, as the provisions don't

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A prescribe, any procedure to be adopted, then obviously the plea may, either be formal or informal, by the accused person. And delving into the issue of burden of proof, an important aspect, I am given to think and repeat, what is trite law, that, the general rule is that the burden of proof, (onus probandi) lies on the party who asserts the B affirmative of the issue, or question, in dispute. Relevantly associated here therefore, and in this case, the burden of proof lies upon the accused to prove what he asserts - that he previously been acquitted or convicted on the same facts, and of same offence, by a court of competent jurisdiction, and this is only on the balance of probabilities - see C R. v Coughlan and Young (1976) 63 Cr. App. R 33.

Retreating back, or coming home and to the case, it is clear, that the appellant having pleaded autrefois acquit, in D his defence produced a certified copy of the proceedings vide which the appellant was acquitted, on no case to answer under Section 230 of the Criminal Procedure Act

1985. The trial Magistrate rightly found the facts in the earlier case Cr. Case No. 100/1987, totally different from the case before him, and like the trial Magistrate I would E rule by applying the above and hereby rule that, the plea of autrefois acquit could not, and cannot succeed at all.

But given that the prosecution evidence was so weak and fluidish, the conviction is usage to uphold. I therefore allow the appeal, quash conviction, and set aside the sentence, the appellant to be released forthwith, unless he is otherwise legally held.

F Appeal allowed.

1991 TLR p148

G

[zRPz]HASSAN MOHAMED MKONDE & ANOTHER v REPUBLIC 1991 TLR 148 (HC)

Court Court of Appeal of Tanzania - Tabora

Judge Korosso J

7 October, 1991

Flynote

H Criminal Practice and Procedure - Legal representation - Right to engage an advocate.

-Headnote

In a trial before the subordinate court the appellant was represented by an advocate who persistently defaulted I appearing in court. The trial magistrate ordered the trial to proceed without the advocate's representation. On an application to quash the proceedings before

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KOROSSO J

the trial court the judge found that the trial court had acted properly in proceeding with the trial in the absence of the A Advocate.

Held: Under the provisions of section 310 of the Criminal Procedure Act, No. 9 of 1985 an accused has a right to engage an Advocate. But such a right has to be reasonably exercised and must be considered along with other B equally important rights. For example, a court of law cannot consider only the right of an accused before it in complete oblivion of the rights of witnesses who appear before it after they have travelled from near and far.

Case Information

Appeal dismissed. C

[zJDz]Judgment

Korosso, J.: This is an application filed by the Applicant one Hassan Mohamed Mkonde who is the 2nd accused in this case which is being tried by Mr G.W. Mirumbe, Resident Magistrate. D

The main reason for the application is that the trial Magistrate conducted the trial in the absence of his counsel despite his complaint that he was unable to conduct his defence without his Counsel, that he entertained reasonable fear that the trial Magistrate would not decide the case impartially. E

Mr. Kwikima, Counsel for the Applicant, submitted that there should be a change of trial Magistrates because the current trial Magistrate has proceeded with the hearing of the case despite his absence at the trial, as he had then been appearing before the High Court, that the trial Magistrate had not supplied him with copy of the proceedings F on application made to the Court and that when his client had alleged that he would not defend himself without his Counsel, the bail bond was cancelled and the Applicant was remanded in Custody. A collection of incidents have been the cause for the Applicant's fear that he would not get a fair trial. Mr Kwikima further submitted that the G proceedings be quashed.

On examination of the Lower Court's record, I find that a greater part of the complaint is unfounded.

The record shows that on 12/3/91 and 13/3/91, the case couldn't proceed for hearing though the prosecutor had H witnesses because Mr Kwikima for the Applicant was reportedly engaged before the High Court Tabora. Again, on 9.4.91 when the case came up for hearing, the prosecutor had witnesses and was ready to proceed. The Applicant (2nd Accused) told the Court that he had engaged Mr Kwikima. The trial Magistrate admitted that Mr I Kwikima had written a letter thus: "Owing to more pressing

A commitment elsewhere, we will not be able to attend the hearing of this matter. We apologize and beg to be excused". The trial Magistrate reacted to the contents of Mr Kwikima's letter in these terms.

B This Court cannot entertain these types of correspondence by a senior member of the bar. In essence, the Counsel has permitted himself and thus, this letter is but an information to that end. This Court will not attach any importance to this letter. This case has witnesses from as far as Mwanza who are going to be paid. The Court cannot adjourn on the vague C correspondence by Mr Kwikima.

The hearing of the case proceeded in the absence of Mr Kwikima. The 2nd Accused (Applicant) was given an D opportunity to cross-examine every witness who testified.

In my humble view, the trial Magistrate was entitled to proceed in the absence of Mr Kwikima, who had chosen to write to the court an ambiguous letter. The trial Magistrate was not obliged to speculate whether such commitment E would be at a wedding, a rally or funeral. A Magistrate whether young by age or new in the profession, must always jealously safeguard the authority of the Court over which he presides at a particular time. He must resolutely resist any attempt by anybody who deliberately or otherwise erodes or belittles the authority of such a Court.

F Again, according to the record, on 2/5/91 Mr Kwikima appeared in Court. By this date 4 prosecution witnesses had testified and then cross-examined by the 2nd Accused (Appellant) in the absence of the learned defence Counsel. On 2/5/91 the prosecutor asked for an adjournment because he had no witness. Mr Kwikima, objected G on the ground that on 12/4/91 the hearing had proceeded despite his absence. His objection was overruled. Mr Kwikima, personally suggested a hearing date of 27/5/91. The application was granted and the case fixed for hearing

on 27/9/91. On 27/5/91 the case came up for hearing as originally fixed on the application by Mr Kwikima. H The prosecutor told the Court that he had two witnesses in attendance. The Court asked the 2nd Accused (Appellant) thus:- "Where is your Counsel?" The 2nd Accused replied:- "He has just gone out". I pray that I go and look for him". The Court remarked thus:- "This is not possible. The Counsel was in Court just now and it I was for this case". In spite of such remarks by the trial Magistrate he adjourned the hearing of the case to

28/5/91 partly because the prosecutor had not brought the exhibits in Court. A

When on 28/5/91 the case came up for hearing, Mr Kwikima was not in Court. His client, the 2nd Accused (Applicant) told the Court that his Counsel had travelled to Mwanza. The trial Magistrate remarked. "But this case was to have proceed yesterday and Counsel left the Court without any information. The witnesses in this case came B from far. This case has to proceed". The hearing proceeded which involved two prosecution witnesses (P.W.5 and P.W.6), whose evidence brought to a close the case for the prosecution.

The hearing of the defence was fixed on 31/5/91. On 31/5/91 when the case came up for the defence, the 2nd C Accused (Applicant) told the Court thus: "My Counsel is present but he has said that he cannot come to court because he has not been supplied with copy of charge sheet and proceedings".

The Court observed thus: "It is surprising that the learned Counsel, who is by far a senior member of the bar can D send such a message to the Court. It may be that the learned Counsel has never wished to defend the 2nd Accused in this case and has sought for excuses. This is quite unfortunate. Nevertheless, this case has to proceed". The E case consequently, proceeded to hearing with the 1st Accused naturally starting his defence.

After the close of the evidence of the 1st Accused, the record of the Court reads thus: "The 2nd Accused has not given this Court the way to defend himself. The Court considers that he has elected to remain silent under, 231 (1) of the C.P.A. There followed two orders: One order was for the judgment to be delivered on 14/10/91: This F order has not been implemented because of this instant application. There is an order for the cancellation of a bail bond. This order has also been the subject of appeal to this Court.

The question is whether this court should interfere by quashing the proceedings. I am not prepared to grant the G application. It is surprising that Mr Kwikima, who had on occasions deserted his client even after he had actually gone into court should now be heard to complain that justice has not been done to his client. The lower Courts record testifies that. On 12/3/91 there were 3 prosecution witnesses and on 13/3/91 there were 2 prosecution H witnesses but the case could not proceed because Mr Kwikima, for the Applicant was engaged before the High Court. The case was set for hearing on 9/4/91 then the case came up for hearing. Mr Kwikima for the Applicant wrote a letter that he wouldn't appear for the Applicant because he had some pressing business elsewhere I

A without saying where and what business. On 27/5/91 the case came for hearing as suggested by Mr Kwikima himself. Mr Kwikima happened to get into Court but when time was ready to start, the Advocate was nowhere to be seen. The 2nd Accused desperately suggested to the Court that he be allowed to go outside a look for his B Advocate, Mr Kwikima, but the lower court rightly rejected the application.

In my view, there is profuse evidence in this case that the trial Magistrate, Mr G.W. Mirumbe conducted the case perfectly well, recording every little incident. I also support him for the action he had taken in cancelling the C Accused's bail bonds because what had been happening in court was unusual and sufficient ground for suspicion to any reasonable mind.

For a judicial officer, there is nothing so fascinating as seeing an Advocate devotedly defending a client, but in this D case, it was a different matter. The lower Court was forced to express surprises after surprises.

If any Advocate decided to defend a suspect whether freely or on payment, then in the eyes of the Court he is obliged to persue the matter as efficiently and devotedly as his profession would expect of him to. If for any reason E best known to an Advocate, he decides to withdraw, then he should do so courteously and professionally. I think that never before in the history of the country have there been so greater awareness by the populace of the importance of advocacy. It is, therefore, imperative for every member of the profession to lay an individual role in F the edification and not in the degradation of the profession so that it wins the essential respect of our anxious people.

It is true that under provisions of section 310 of the Criminal Procedure Act, No. 9/83, an accused has a right to G engage an Advocate. But such a right has to be reasonably exercised. In this case, the Accused were formally charged on 26/5/88. It was not until about March, 1991 when the Applicant engaged an Advocate, Mr Kwikima. By then almost 21/2 years had elapsed. Surely, it cannot be sensibly argued that the Applicant had exercised his H right with reasonableness.

Again, the right of an accused under the provisions of section 310 of the Criminal Procedure Act No. 9/85 has to be considered along with other equally important rights. For example, a Court of law cannot consider only the right of I an accused before it is complete oblivion of the rights of witnesses who appear before it after they have travelled from near and far. There is the right of the Republic,

which pays allowances to those witnesses. In this case from 12/3/91 to 21/5/91, the learned trial Magistrate has A been fully aware of all other rights besides that of the Appellant. This is what I would choose to call, balanced justice rather than what I would also call, one sided justice. Similarly, there is nothing in the record to show that any of the Accused was denied an opportunity to call a witness or witnesses. In the case of the Applicant, he had B explicitly indicated his wish to call witness.

On the foregone observations, I would refuse to grant the application.

Application refused. C

D

[zRPz]REPUBLIC v MT 22512 L/CPL NEWTON LAZARO 1991 TLR 153 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Samatta JK

15 October, 1991

Flynote

Criminal Practice and Procedure - Revision - Revisional proceedings for correction of an error of subordinate court. E

-Headnote

In revisional proceedings the High Court judge found that the trial Resident Magistrate had negligently signed a commitment warrant for the incarceration of an accused he had acquitted instead of the one he convicted. F

The judge nullified the warrant and ordered the release of the person.

Held: It is of the first importance that those who have the duty of preparing commitment warrants or approving them by signing them must exercise great care in discharging those very important duties. G

Case Information

Order accordingly.

[zJDz]Judgment

Samatta, J.K.: It cannot be disputed that most grievous injustice has been done to MT 22512 L/CPL Newton H Lazaro, one of the five accused in this case. On May 28, 1990, the man was acquitted by the District Court of Ilala of two charges namely, stealing by a person employed in public service, contrary to s. 265 and 270 of the Penal Code, and unlawful possession of offensive weapon, contrary to s.8(1) of the National Security Act, 1970. Two of I the man's co-

A accused were convicted and sentenced to imprisonment. The clerk who prepared commitment warrants in respect of the two men apparently mixed up the name of one of them with L/CPL. Newton Lazaro's name. The most disturbing result of that apparent gross negligence was that later l/CPL. Newton Lazaro was arrested and, no doubt to his utter disbelief, taken to Ukonga prison. He has been there, I am informed, for several months. This B purported imprisonment must be brought to an end immediately. Accordingly, there will be an order in the following terms:

The warrant of commitment signed by Mr. Kingambi Hyera, Resident Magistrate, on 28th May, 1990, purporting to C authorize and require the Superintendent of Ukonga Prison to receive MT. 22512 L/CPL. Newton Lazaro into his custody and there carry a sentence of five (5) years imprisonment into execution is hereby declared to be null and D void and therefore having no force in law. MT. 22512 L/CPL. Newton Lazaro be released from custody with immediate effect unless his personal liberty is otherwise lawfully assailed.

It is of the first importance that those who have the duty of preparing commitment warrants or approving them by E signing them exercise great care in discharging those very important duties. I devoutly hope that what has happened to MT. 22512 L/CPL. Newton Lazaro in this case will be a solitary tale in the administration of justice in this country.

F Order accordingly.

1991 TLR p154

G

[zRPz]KABULUNGU JUMA v REPUBLIC 1991 TLR 154 (HC)

Court High Court of Tanzania - Tabora
Judge Korosso J

16 October, 1991

Flynote

H Criminal Law - Rape - Woman consents to sexual intercourse - Whether offence committed - S.130 of Penal Code, Cap. 16.

-Headnote

The appellant Kabulungu Juma, a medicine-man was convicted of the offence of rape and sentenced to 5 years imprisonment. However, it was established that the woman voluntarily consented to the intercourse believing that it I was part of her treatment by the appellant of her ailment.

1991 TLR p155

KOROSSO J

Held: (i) A woman who is enslaved by strange ideas and beliefs who allows a medicine-man to have intercourse A with her in the hope that the sexual act was the medicine-man's way of examining her pregnancy cannot be heard to complain of rape.

Case Information

Appeal allowed. B

Mtaki, for the respondent.

[zJDz]Judgment

Korosso, J.: This appeal has been lodged by the appellant who was charged with and convicted by Kigoma District Court of the offence of rape c/s 120 of the Penal Code. The Appellant was sentenced to 5 years C imprisonment.

In this petition of appeal one of his grounds has been that the trial Magistrate had erred in holding that there had been no consent on the part of Beatrice Kayemba (P.W.1). D

Mr. Mtaki, the Principal State Attorney representing the Republic, supports the conviction.

The evidence as adduced by one Beatrice Kayemba (P.W.1) doesn't prove commission of rape by the appellant. According to P.W.1 herself, she had agreed being intercoursed by the appellant whose male organ was smeared E with white powder. The appellant assured P.W.1 that sexual act with her on her bed in her house would ascertain whether the child was naturally positioned

in her womb. P.W.1's voluntary consent to sexual intercourse by the appellant vitiates the offence of rape. A woman who is enslaved by the strange ideas and belief, allows a F medicine-man to intercourse her in the hope that the sexual act was the medicine-man's way of examining her pregnancy, cannot be heard to complain of rape. The only remedy available for P.W.1's husband could possibly be to sue the appellant for adultery. G

On the foregone observations I would quash conviction and set aside the sentence of imprisonment.

It is hereby ordered that the Appellant be released forthwith unless lawfully held for other causes. H

Appeal allowed.

1991 TLR p156

A

[zRPz]BONIFACE MBOJE & ANOTHER v REPUBLIC 1991 TLR 156 (HC)

Court High Court of Tanzania - Tabora

Judge Sekule J

18 October, 1991

Flynote

B Criminal Practice and Procedure - Sentencing - Excessive sentence.

-Headnote

On the 18th of October 1988 PW.1 complainant discovered that his carpentry tool box had been stolen. Some C days later PW.4 came and informed him that the first appellant together with the person who was the 1st accused was selling carpentry tools. When PW.1 went he found and identified some of his stolen carpentry tools. The two suspects were charged. After the close of the prosecution the 1st appellant pleaded guilty. He was convicted and D sentenced to six years imprisonment. At the end of the case the 2nd appellant was also convicted. He got the same sentence. The first appellant appealed against sentence and the second appellant appealed against both conviction and sentence.

E Held: (i) The sentence of six years imprisonment meted to the first appellant, is manifestly excessive and for this reason it is reduced to one of three (3) years imprisonment;

(ii) there was no sufficient evidence to convict the second appellant for the offence charged;

Case Information

F Order accordingly.

[zJDz]Judgment

Sekule, J.: The two appellants namely Boniface Mboje and Paschal Mrembe hereinafter to be referred to as the G 1st and 2nd appellant respectively together with two other person were charged in the District Court of Shinyanga District of the offence of stealing contrary to section 265 of the Penal Code.

It was alleged that they jointly and together stole an assortment of carpentry tools belonging to one Doto Shija. The H appellant was the 2nd accused of the trial and the 2nd appellant was the 4th accused.

The facts of case are briefly that on the 18th of October, 1988, PW.1 Doto Shija discovered that his carpentry tools box had been stolen and that a couple of days later one Nkwabi Sanga, PW.4 came and informed him that the 1st I appellant together with the person who was the 1st accused were selling carpentry tools. PW.1 Doto Shija went to the place where the appellant was said to be

selling the carpentry tools. And he found the items they were selling were part of his stolen tools. And he duly A identified the items.

After the close of the persecution case at the trial, the 1st appellant did change his plea of not guilty to the charge to that of guilty to the charge.

The change of plea was accepted and the trial court went on to find him guilty as charged and convicted him B accordingly on his own plea of guilty.

The rest of the 1st Appellant's co-accused proceeded to defend themselves. The 2nd appellant was at the end convicted. Both appellants were each sentenced to six years imprisonment. The 1st appellant is now appealing C against sentence.

The 1st appellant has contended in his petition of appeal that as he pleaded guilty and served the prosecution's time, this factor should have been considered in assessing the sentence that was to be imposed against him. D

He also claim to have been a first offender and that he is a young person, he seems to have been 22 years of age at the time of his conviction.

Mr. Bilaro, learned Counsel who appeared for the Republic was of the view that the sentence was rather excessive. E I agree. The sentence was excessive in the circumstance of the case. The facts that appellant changed his plea to one of guilty should have been considered so is the fact that he was a first offender and a young person.

I am therefore of the considered opinion that this appeal has merits. I would and do hereby set aside the sentence F that was imposed against the 1st appellant. And I substitute therefore the sentence of three years imprisonment. It is so ordered.

On the 2nd appellant who is appealing against conviction and sentence, I agree with the learned State Attorney that G there was no cogent evidence connecting him with the crime.

He was simply mentioned by his co-accused. This however was not enough to found a conviction against the 2nd appellant. Section 33 of the Evidence Act, 1967 refers. And the 3rd accused's statement which implicated the 2nd appellant needed to be also materially corroborated in the circumstances of the case. As a matter of fact, the trial H court, appeared to have convicted him simply because he chose to say nothing in his defence, when the options that were open to him were pointed and explained at the close of the prosecution case. It is true a court can draw an adverse inference on an accused's choice of silence. But this alone cannot be a basis of a I

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A conviction in the absence of evidence establishing an accused's guilt. The 2nd appellant's conviction is with respect, therefore not well founded. The appeal is allowed.

The conviction is quashed and the sentence is set aside. The appellant is to be released forthwith unless otherwise lawfully held.

B Order accordingly.

1991 TLR p158

C

[zRPz]MRISHO SALUM v REPUBLIC 1991 TLR 158 (HC)

Court High Court of Tanzania - Tabora
Judge Sekule J

21 October, 1991

Flynote

D Criminal Practice and Procedure - Conviction - Procedure for convicting an accused in absentia.

Criminal Practice and Procedure - Accused escapes - Whether adverse inference can be drawn against the accused.

-Headnote

E At one time the police were conducting some investigations in Ng'ambo area in the Tabora Municipality. In the course of the exercise they were tipped that in one house near the area there were robbers. They went to the house and tried to surround it. The appellant ran out of the house but was pursued and arrested. The house was searched F and a three band radio cassette, which was later identified as belonging to one, Masali Fundikira was recovered. Inside the house another person, presumably the appellants co-accused, was found under the bed. He was arrested. It appears that this person was the owner of the house in question. There was also some evidence that the appellant G lived with his parents in another house. The appellant and this other person were charged with the offence of house breaking, stealing and unlawful possession of bhang. It would appear before the trial started, the appellant's co-accused and who was the 2nd accused absconded. The charge against him was withdrawn. After the testimony H of one witness the appellant also absconded.

The trial court ruled that since the appellant absconded from lawful custody after hearing the first prosecution witness I it was reasonable to draw an adverse inference against him and that a prima facie case was established against him. The court went on to convict him in absentia as charged and sentenced him to 13 years

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SEKULE J

imprisonment for house breaking and stealing and one year A
imprisonment for unlawful possession of bhang. He appealed to the High Court of Tanzania.

Held: (i) The appellant's action of running away was not sufficient, in itself, to show that he was a party to the B commission of the offences of housebreaking and stealing;

(ii) as the first prosecution witness did not mention anything on bhang the court was not justified in holding that a prima facie case had been established in respect of it;

(iii) the provisions of section 227 of the Criminal Procedure Act are applicable where the accused fails to C appear on a date fixed for continuation of hearing after the close of the prosecution case or on the date fixed for passing the sentence;

(iv) on the basis of section 226 of the Criminal Procedure Act the trial court had a duty to hear the D prosecution case to the end and if it is was satisfied that the evidence adduced warranted a conviction it could have proceeded to convict the appellant in absentia.

Case Information

Appeal allowed. E

[zJDz]Judgment

Sekule, J.: The appellant Mrisho Salum together with one Marseli Haruna were jointly charged in the District Court of Tabora with the offences of house breaking, stealing and unlawful possession of noxious plant commonly known as bhang. The offences appeared as 1st, 2nd and 3rd counts respectively on the charge sheet. The appellant F was the 1st accused at the trial.

It would appear before the trial started, the appellant's co-accused and who was the 2nd accused absconded. And when efforts to arrest him failed, the charge against him was withdrawn. The case thus proceeded against the appellant alone. G

After the testimony of one witness, the appellant also disappeared. The trial Court then proceeded to make the following ruling:

Since the accused person namely Mrisho Salum escaped from lawful custody within the court premises after hearing the H evidence of the first prosecution witness, I think, it is not unreasonable to draw an adverse influence against him (accused person) against whom a prima facie has been established at least it exists and the said accused having escaped from lawful custody. I

1991 TLR p160

SEKULE J

A Accordingly I convict him as charged, that is burglary c/s 294 (1) of the Penal Code, stealing contrary to Section 265 of the Penal Code and the unlawful possession of noxious plants c/s 2(b) of the Cultivation of Noxious plants (Prohibition) Ordinance Cap.134.

The appellant was then sentenced to 3 years imprisonment on the 1st Court, i.e. burglary, one year imprisonment in B respect of the 3rd count, possession of bhang.

The appellant is now appealing against conviction and sentence. And he was present at the hearing of the appeal. C Mr. Oswald, learned State Attorney appeared for the Republic and declined to support conviction.

The background of the case can be gathered from the testimony of Detective Cpl. Patrick Benedict the sole witness who testified, is that on the material day, he and other two CID officers were conducting some investigations in the D Ng'ambo area in the Tabora municipality. They were then tipped that in one house in that area there were robbers. And they

accordingly went to that house. And as they were in the process of surrounding the house, the appellant rushed out of that house and ran away. He was pursued and arrested. The house was then searched and a three band radio cassette was recovered from therein and this radio was later identified to be the stolen property of one E Masali Fundikira of Ng'ambo Sikonge Street in the Municipality.

In the house, they found another person under the bed. I suppose this was the appellant's co-accused.

F The appellant then led the police to his parent's home where they met his mother. Thereafter he and his co-accused were taken to the Police Station and charged.

And this was the essence of the prosecution case at the time before the appellant escaped. In his petition of appeal, G the appellant has contended that there was no prima facie case established. And he stated in his oral submission at the hearing of the appeal that the person who escaped and avoided trial was the owner of the house.

I have considered the evidence and I agree with the appellant, that the evidence of PW.1, Detective Cpl. Patrick H Benedict did not establish a prima facie case against the appellant. All it established is that the appellant ran away from that house in which a stolen radio was found upon a search. But in any view the appellant's act of running away could not on its own establish that he was a party to the commission of the offences contracted with that radio. He I was not a resident of that house. He lived with his parents in another

1991 TLR p161

SEKULE J

house. And he led the Police to his parent's home and it would appear nothing incriminating was found there. A

It is the owner of the house who appears to be the person who avoided trial who should have been principally the person to explain how the radio in question came to be in his house.

As to the issue of unlawful possession of bhang, there was no mention of bhang at all in the testimony of PW.1. I B do not therefore understand why the trial Court was of the view that a prima facie case had been established in respect of this particular count.

Further, it would appear, after the disappearance of the appellant after the testimony of PW.1, in taking the course it C took, the trial court was probably and purportedly acting under the provisions of section 227 of the Criminal Procedure Act, 1985. Should that be the case, the trial court, was with respect in error. The provisions of section 227 of the Criminal Procedure Act, do in my view apply to situations whereby an accused fails to appear on a date fixed for continuation of the hearing after the close of the prosecution or on the date fixed for the passing of sentence D (underlining supplied). In this case, the prosecution had not closed their case when the appellant went missing. The proper provisions which should have been invoked were in my view the provisions of section 226 of the Criminal Procedure Act. And the Court should have proceeded to hear the prosecution case to the end and if the evidence E adduced warranted a conviction, then it could have proceeded to convict him in absentia. The provision of section 226 (2) (3) and (4) should however always be closely borne in mind in this kind of situation.

The procedure adopted was therefore in my view and with respect, not proper. F
For the foregoing reasons, this appeal succeeds and it is hereby allowed. The conviction is quashed and the sentence is set aside. The appellant is to be released forthwith unless otherwise lawfully held. G
Appeal allowed.
1991 TLR p162
A
[zRPz]IBRAHIM LOYA v REPUBLIC 1991 TLR 162 (HC)

Court High Court of Tanzania - Tabora
Judge Korosso J

21 October, 1991
Flynote
B Criminal Law - Corruption - By militiaman - Appellant demands and receives bribe to set complainant free - Appellant convicted of corruption - Complainant committed an offence known to law - Whether offence committed is corruption or obtaining money by false pretences Penal Code s. 302, Economic and Organized Crime Control Act, Paragraph (2) of the C first schedule and ss. 56 (2), 59 (2).
Criminal Practice and Procedure - Charge - Duplicity - Appellant impersonated policeman - Complainant agreed to bribe appellant because of personation - Appellant charged with and convicted of personating public officer and attempt at D extortion - Count of attempts at extortion complex - Penal Code, ss. 100(1), 290(1).
-Headnote
The appellant was charged before the District Court of Tabora with three offences. In the first count he was charged E with corruption contrary to paragraph 2 of the first schedule to and sections 56(2), and 59(2) of the Economic and Organized Crime Control Act No. 13/84. He was convicted of this offence and sentenced to 4 years imprisonment. In the second count he was charged with the offence of personating a public officer contrary to section 100(1) of the F Penal Code, convicted and sentenced to 6 months imprisonment. In the third count he was charged with and convicted of attempt at extortion contrary to section 290(1) of the Penal Code and sentenced to 3 years imprisonment.
G The complainant had committed an offence known to law at the time the appellant put him under restraint and demanded bribe from him.
Held: (i) There is abundant evidence supporting the conviction of obtaining goods by false pretences c/s 302 of the H Penal Code. This is so because the complainant committed an offence known to the law at the time when the appellant purported to accuse him of having committed the offence of assault. The conviction of the offence of I obtaining goods in the first count is thus substituted for conviction of the offence of corruption;
1991 TLR p163

KOROSSO J

(ii) it having been proved that the appellant had falsely represented himself as a policeman and that the A complainant had agreed to give out money because of the appellant's personation as a policeman, the offence of attempts at extortion c/s 290 of the Penal Code was a duplication of the second count of personating a public officer c/s 100 (1) of the Penal Code. Conviction of personation up-held, third count of attempts at extortion quashed and B sentence of 3 years imprisonment imposed thereon set aside.

Case Information

Appeal dismissed save for third count. C

Bilaro State Attorney, for the Republic.

[zJDz]Judgment

Korosso, J.: The appellant has presented this appeal challenging the decision of the District Court of Tabora before which he was charged with three offences. In the 1st count, he was charged with and convicted of the offence of D corruption c/- paragraph (2) of the First Schedule to and section 56(2) and 59(2) of the Economic and Organized Crime Control Act No. 13/84. He was sentenced to 4 years imprisonment.

In the 2nd Count, he was charged with and convicted of the offence of personating a public officer c/s 100 (1) of the E Penal Code. He was sentenced to 6 months imprisonment.

In the 3rd Count, he was charged with and convicted of attempt at Extortion c/s 290 (1) of the Penal Code. He was sentenced to 3 years imprisonment Dissatisfied with the findings and sentences of the Lower Court, he has appealed F to this Court.

The facts of the case as admitted by the lower court were that on 20/11/1986 the Appellant, a militiaman, who was not on duty then happened to meet the complainant on the way. He accused the complainant of having assaulted a G certain person at the central market. He ordered the complainant to accompany him to the Police Station. On the way to the Police Station, the Appellant suggested that if the complainant paid the sum of Shs. 1,000/=, he would set him free. The complainant promised to pay the money on the following day. The Appellant, who was in company H of another militiaman, parted with the complainant after having seized the complainant's identify card. Meantime, the complainant reported the matter to Officers of the Squad who arranged the trap on the following day, at the I restaurant where they had agreed to meet. The Appellant and co-accused were arrested together with the employee

A of the garden restaurant who had been asked to preserve the money for them.

The appellant in his defence testified that he had been innocently assaulted.

B Mr. Bilaro, the learned State Attorney who represented the Republic submitted that the Appellant should have been convicted of obtaining goods by false pretences as far as the 1st count was concerned rather than convicting of the Appellant of the offence of corruption. He supported conviction of the 2nd count and 3rd count.

C I agree with the learned State Attorney that the abundant evidence supported conviction of obtaining goods by false pretence c/s 302 of the Penal Code. This is so because the complainant

had committed no offence known to the law at the time when the Appellant purported to accused him of having committed the offence of assault.

D I am not sure in my mind if the Appellant had committed the offence of attempts at extortion. It having been proved that the Appellant had falsely represented himself as a policeman and that the complainant had agreed to give out the money because of the Appellant's personation as a Policemen, the offence of attempts at extortion c/s E 290 (1) of the Penal Code, was in my humble view, a duplication of the 2nd Count.

On the foregone observations, I would convict the Appellant of the offence of obtaining goods by false pretences in the 1st Count.

As to the 2nd Count, the conviction of personation is up-held. I quash the 2nd Count of attempts at extortion c/s (1) F of the Penal Code, and set aside the sentence of 3 years imprisonment.

Appeal dismissed save for the 3rd Count.

1991 TLR p165

A

[zRPz]COOPER MOTORS CORPORATION (T) LTD v ARUSHA INTERNATIONAL CONFERENCE CENTRE 1991 TLR 165 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Omar JJA, and Mnzavas JJA

29 October, 1991 B

Flynote

Contract - Bailment - Extent of bailee's duty - S. 103 Law of Contract Ordinance, Cap. 433.

Contract - Exemption clause - Fundamental breach - Whether an exemption clause can avail a contract breaker where he C has committed fundamental breach.

Contract - Damages - Special damages - Whether court may award more damages than pleaded.

-Headnote

In a suit for damages arising out of breach of contract the trial judge found that the appellants had committed D fundamental breach of their contract of bailment and thus they were not availed of the protection of the exemption clause imbedded in the contract. The trial judge also awarded the respondents special damages grossly in excess of the special damages claimed. On appeal the justices of appeal upheld the trial judge's decision but quashed the E award of special damages.

Held: (i) Under section 103 of the Law of Contract Ordinance a bailee of a chattel has duty to take as much care of the chattel as a person of ordinary prudence would do in respect of his own goods. F

(ii) the failure by the appellants to exercise duty of care in respect of the motor vehicle to them for repairs went counter to the clear statutory provisions of section 103 of the Law of Contract Act, Cap. 433.

(iii) the theft of the engine and gearbox was a breach on the part of the appellants which went to the root of G the contract; and as such the exemption clause could not be relied on;

(iv) it was wrong for the trial judge to award special damages which were more than what the respondent had claimed. H

Case Information

Order accordingly.

[zJDz]Judgment

Mnzavas, Kisanga and Omar, JJ.A.: In this appeal the present respondent, Arusha International Conference Centre, filed a suit in the High Court, (Chua, J.), against the present appellant, Cooper Motor Corporation (T) Ltd., I seeking for an order that the appellant/

A defendant returns to him his (respondent's) motor vehicle in good condition and repair. The respondent/plaintiff also claimed from the appellant/defendant total of Shs. 166,000/=, as special damages and general damages for loss of use of his motor vehicle to the tune of Shs. 90,000/=. The trial Court was also asked to grant any further costs it B may deem fit to grant.

After a full trial the learned judge came to the conclusion that the respondent had proved his claim against the appellant and accordingly ordered the appellant to pay Shs. 1,018,969/30 as special damages, Shs. 90,000/= as C general damages and finally ordered the appellant to fix a new engine and gearbox to respondent's motor vehicle. The appellant was also to pay 9% interest on the amounts awarded from the time of filing the suit to the time the whole amount was paid in full. Aggrieved by the decision of the High Court the appellant is appealing to this Court.

D The following undisputed facts formed the basis of respondent's claim against the appellant. On the 7th of August 1981 the respondent/plaintiff delivered the motor vehicle registration No. SU 13483, a Volkswagen Combi, to the appellant's garage in Arusha for repairs in accordance with instructions as per exhibit P2 E dated 7/8/81 for a consideration of Shs. 14,654/=. The appellant apparently repaired the motor vehicle but as the motor vehicle was about to be delivered to the respondent who was ready to pay for the repairs the appellant wrote F a letter - exhibit P1 dated 26/12/81 to the respondent informing him as follows:

We are sorry to inform you that the engine and gearbox for your car quoted above which was undergoing repairs in our workshop has been stolen.

G This was discovered in the morning of 28th September, 1981 and the matter was reported to the Police who have been dealing with it since then.

Investigations are still going on after which we shall communicate to you.

H Meanwhile we shall appreciate if you would please provide us with the engine number from the log book for onward transmission to the C.I.D.

I Yours faithfully,

For and on behalf of

The Cooper Motor Corp. (T) Ltd.

After this correspondence the appellant offered, without prejudice, to settle respondent's claim out of Court and A offered to purchase the motor vehicle at its market value at the time it was delivered for repair on 7/8/91 - exhibit P3 dated 21/1/87. A reminder regarding the offer was sent to the respondent by the appellant on 14/5/82 as shown in exhibit P4. B

A counter offer was made to the appellant by the respondent who, by way of mitigation of costs, afford to buy a new engine and gearbox for the motor vehicle whose price would be submitted to the appellants for payment by invoice; and other damages to be negotiated between the parties as per Exhibit P5 dated 24/3/83. This counter offer C was not replied to by the appellant despite two other reminders as shown in exhibits P6 and P7 dated 6/6/83 and 3/5/83 respectively. It was after this that the respondent went to Court (as mentioned above) and subsequently the appellant, being aggrieved by the judgment of the trial Court, decided to come to this Court. D

Before us the appellant was represented by Mr. Kapoor and Mr. Desouza learned Counsels. Mr. Kapoor conceded that there was a contract between the appellant and the respondent whereby the former was to repair a motor vehicle of the later for an agreed sum of money. Equally Mr. Kapoor admitted in his submission that the E motor vehicle was delivered to the garage of the appellant and thereby making the appellant a bailee of the motor vehicle. While the motor vehicle was in the possession of the bailee, the appellant, its engine and gearbox were stolen. What this Court has to decide is whether the appellant as a bailee of the motor vehicle would be responsible F in law for the loss of the engine and the gearbox.

Mr. Kapoor vigorously argued that their client, the appellant, as a bailee of the chattel exercised enough and reasonable care in protecting the property. He said to quote him - "No one would have taken the engine and gearbox without being detected by the guard. It is our contention that the motor vehicle was kept in a first class G garage and not under a tree. The appellant's duty of care was no more than what he did".

Secondly Mr. Kapoor submitted that over and above the argument that the appellant had discharged his duty of care as a bailee under section 103 of the Law of Contract Act, he was also protected from liability by the exemption H clause in the agreement between the parties. It was the learned Counsel's submission that a contract can include any exemption clause no matter how wide. In support of this argument we were referred to the decisions in Kenyon I Ltd. v Baxter Hoare & Co. [1971] 2 All E.R. 708 and Suisse Atlantique Société

A d'Armement Maritime S.A. v N.V. Rotterdamsche Kolen Centrale [1966] 2 All E.R. 61. It was submitted that the decision in these two cases was that a contract can even exclude a fundamental breach in its exemption clause. Mr. Kapoor, learned Counsel submitted that their client, the appellant, was not a warehouse; that he had B contracted to repair respondent's motor vehicle and not to warehouse it.

Coming to the quantum of damages awarded by the High Court it was submitted that the respondent had claimed a maximum of Shs. 166,000/= special damages. That being the claim Mr.

Kapoor argued that the learned judge erred C in law in awarding special damages to the respondent which were more than what the respondent had pleaded. In support of this argument the Court was referred to the decision of this Court in The Cooper Motor Corporation Ltd. v Moshi/Arusha Occupational Health Services - Civil Appeal No. 1 of 1990. Finally Mr. Kapoor submitted D that even the Shs. 166,000/= special damages claimed by the respondent had not been proved. To fortify his argument we were referred to page 59 of the High Court judgment where the learned judge noted that the plaintiff, E now the respondent, had shown how he arrived at the figure of Shs. 166,000/= special damages.

The learned Counsel asked the Court to allow the appeal. In the alternative Mr. Kapoor submitted in reply that in the event the Court found that there was a fundamental breach on the part of the appellant the Court should look F into the value of a gearbox and engine. To counter Mr. Kapoor's submission that the appellant was not liable for the loss of the engine and the gearbox Mr. Umbulla, learned Counsel for the respondent/plaintiff argued that the evidence showed that the appellant instead of repairing the motor vehicle under the contract he vandalized it. This, it was argued, went counter to the statutory provisions of section 103 of the Law of Contract Act. Secondly it was G Mr. Umbulla's submission that it is now settled law that exemption clauses will no apply where there is a fundamental breach. In support of his argument we were referred to Anson's Law of Contract - 21st Ed. at pages H 126 and 127. It was argued that exemption clauses cease to have effect where the breach went to the root of the contract. It was submitted that in this case the appellant, as a bailee, was required in law to take care of the respondent's motor vehicle generally. In support of his argument the decision in Photo Production Ltd. v I Securicor Transport Ltd. [1978]3 All ER 146 was quoted.

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MNZAVAS, KISANGA AND OMAR JJA

As for quantum of damages Mr. Umbulla submitted that special damages were pleaded and that the sum of Shs. A 166,000/= claimed was up to 31/3/82. On the question of general damages it was Mr. Umbulla's submission that their claim of Shs. 90,000/= as general damages was found to be reasonable by the High Court and asked this court not to interfere. The learned counsel finally argued that this Court should order that the respondent be compensated B for the loss of the engine and gearbox. The Court was asked to dismiss the appeal with costs.

This is an interesting case and it has exercised our minds a great deal. We have endeavoured to read all the C authorities quoted to us by learned counsel and we have made our own research as to what should be the law where an exemption clause is worded in wide terms which tend to make the contract itself absurd.

This situation arose in England in the case of J. Spurling v Bradshaw [1956]1 W.L.R. 461 where it was held inter alia: D

> Exemption clauses are to be read as subject to a proviso that they only avail to exempt a party when he is carrying out his contract, not when he is deviating from it or is guilty of a breach which goes to the root of it. E

If this decision is anything to go by the facts in this case show that (to borrow Mr. Umbulla's terminology) the appellant "vandalized the respondent's motor vehicle instead of repairing it".

This was clearly a breach that went to the root of the contract. But, as already mentioned above, Mr. Kapoor argued that parties to a contract may insert F exemption clauses in a contract which protect a party even where there is a fundamental breach. The Suisse case (supra) quoted by Mr. Kapoor in support of his contention was also referred to by Mr. Umbulla in support of the opposite view. G

We have carefully read the judgment in this case and it is our view that the decision is more compatible with the argument advanced by Mr. Umbulla than that put forward by Mr. Kapoor. For example at page 68 the judgment of Pearson, L.J., in U.G.S. Finance Ltd. v National Mortgage Bank of H Greece and National Bank of Greece, S.A. is quoted where he said inter alia:

As to the question of fundamental breach I think there is a rule of construction that normally an exception or exclusion clause or similar provision in a contract should be construed as not applying to a situation created by a fundamental breach I

A of contract. This is not an independent rule of law imposed by the Court on the parties willy-nilly in disregard of their contractual intention. On the contrary it is a rule of construction based on the presumed intentions of the contracting parties. It involves the implication of a term to give to the contract that business efficacy which the parties as reasonable men must B have intended it to have. This rule of construction is not new in principle but it has become prominent in recent years in consequence of tendency to have standard forms of contract containing exception clauses drawn in extravagantly wide C terms, which would produce absurd results if applied literally.

In the same case at page 76 the Court said inter alia:

D Exemption clauses differ greatly in may respects. Probably the most objectionable are found in complex standard conditions which are now so common. In the ordinary way the customer has no time to read them, and if he did read them, he would probably be told that he could take it or leave it. If he then went to another supplier, the result would be the same. Freedom to E contract must surely imply some choice or room for bargaining. At the other extreme is the case where parties are bargaining on terms of equality and a stringent exemption clause is accepted for a quid pro quo or other good reason; but this rule appears to treat all cases alike ... This is a complex problem which intimately affect millions of people and it F appears to me that its solution should be left to Parliament.

Again at page 78 the Court says inter alia:

G Sometimes it has been declared that where a fundamental breach had occurred an exception clause could not as a matter of law be relied on, but the better view on the authorities and that accepted by both sides before your lordships, is that, as a matter of construction, normally an exception or exclusive clause or similar provision in a contract should be construed as H not applying to a situation created by a fundamental breach of contract.

That was a case decided in England and so decision is of persuasive value. Coming back home we have section 103 I of the Law of Contract Act which deals with bailment. It says:

MNZAVAS, KISANGA AND OMAR JJA

In all cases of bailment the bailee is bound to take as much care of the goods bailed to him as a person of ordinary A prudence would under similar circumstances take care of his own goods of the same bulk, quantity and value of the goods bailed: Provided nothing in this section shall be construed as applying to or qualifying the liability at common law of a B common carrier or an in keeper.

In the present case it is not disputed that the appellant was a bailee of the motor vehicle sent to him for repairs. As a bailee of the chattel the law required him to take as much care of the chattel as a person of ordinary prudence would C do in respect of his own goods. That the whole engine and its gearbox were dismantled from the motor vehicle and stolen from appellant's garage tends to support Mr. Umbulla's argument that the appellant failed to exercise duty of care in respect of the motor vehicle entrusted to him for repair. This failure went counter to the clear D statutory provisions of section 103 of the Law of Contract Act. Cap. 433.

As to the argument that the appellant was protected by the exemption clause which said inter alia that "the appellant was expressly relieved of all liability for loss of or damage to customers' goods and property however E caused" we are satisfied in our own minds that the theft of the engine and the gearbox was a breach on the part of the appellant which went to the root of the contract; and as such could not absolve the appellant from liability. We would be setting a very dangerous precedent if we are to hold that an exemption clause like the one relied upon by F the appellant could protect a garage owner in whose garage vital parts of a motor vehicle sent there for repairs are stolen. On the totality of the evidence we agree with the learned trial judge that the appellant was liable for the loss of respondent's engine and gearbox. The appeal is accordingly dismissed with costs in this Court and the High G Court.

On the question of damages it is amply clear that the respondent did not prove to the Court how he incurred the special damages of Shs. 166,000/=. The respondent did not produce even an invoice demanding payment let alone H a receipt to show that he incurred expenses in hiring alternative transport after his motor vehicle had been vandalized. That being the position and taking

into account the provisions of Order VII R.7 of the Civil Procedure Code that every plaint shall specifically state the relief which the plaintiff claims, we have no alternative but to disallow the claim of special damages. We should also I like to mention to the learned trial

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A judge that it was wrong in law for him to award special damages which were more than what the respondent/plaintiff had claimed. A party is only awarded damages which he pleaded and proved by way of evidence. See C.A. Civil appeal No. 32 of 1988 - Arusha International Conference Centre v Edward Clemence.

B The claim of Shs. 90,000/= general damages for loss of use is upheld.

The motor vehicle, SU 13483, VW, COMBI to be returned to the respondent fitted with a new engine and a new gearbox and in good mechanical condition and repair.

C If the appellant has effected repairs on the motor vehicle as per repair order - Exhibit P2, repair charges as shown in exhibit P2 to be paid to him by the respondent.

D Order accordingly.
1991 TLR p172
E
[zRPz]AMAN DAVID MLANGA v TIMBER IMPREGNATION LTD 1991 TLR 172 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Kyando J

14 November, 1991
Flynote
F Civil Practice and Procedure - Suits against government - Ministerial fiat - Whether ought to have been obtained regardless of court order.
Civil Practice and Procedure - Change of advocate - Whether formal withdrawal needed.
-Headnote
G An order was made by a Judge under 0.1, r.10 (2) and (4) of the Civil Procedure Code that the Director for Lands be made a co-defendant of the suit. The judge also directed that the plaint be amended to comply with said order. At the hearing an objection was raised to the effect that Ministerial fiat had not been sought and given.
H Held: (i) That it was necessary to obtain the consent of the Minister for Legal Affairs even if the court makes an order to join him as a co-defendant in a suit which has already been instituted;
I (ii) that an order of the court cannot be operative contrary to statute;
1991 TLR p173
KYANDO J
(iii) Obiter: that the requirement for advocates to formally withdraw from suits, and before the court, is a A requirement based on practice and courtesy only.
Case Information
Objection affirmed.
Macha for defendant B
Tarimo for plaintiff.
[zJDz]Judgment
Kyando, J.: In this suit on 24/11/85 I ordered, under 0.1 R.10(2) & (4) of the Civil Procedure Code, 1966, and in view of the issue involved in the case that the Director for Lands be made a defendant. I directed the plaint to be C amended to comply with my order and the plaintiff did so.
On 13/9/91 when the suit was called for hearing, Mrs. Macha, who apparently represented the Director for Lands, raised a preliminary point of objection to the suit, which was that the Director for Lands, through the Attorney D General, had been sued without a consent to sue the Government having been obtained first in terms of the Government Proceedings Act. She

contended that the suit was for the reason incompetent and should, until the E requisite consent is obtained be truck out.

In reply Mr. Tarimo for the plaintiff submitted that the addition of the Director of Lands, and therefore the Attorney General, was made following an order of this court i.e. my order referred to above. He said that they themselves did not sue the Attorney General. He said that the Attorney General came in by an order of the court. Further Mr. F Tarimo submitted that for over two years the Attorney General has been appearing in this case without raising any objection. He said it does not take two years to discover whether any consent was required. He submitted that the Attorney General, by his conduct, had in fact consented to the proceedings going on. He said at the relevant time the G Attorney General was also the Minister of Justice, (and it is the Minister who gives the consents).

Mrs. Macha responded by submitting that the matter had never been heard before. She said the mere fact of H previous appearances therefore did not restrict the Attorney General from raising the preliminary point she was now raising. She submitted further that the Attorney General cannot be said to be estopped from raising the objection because of his previous conduct of appearing: She said estopped cannot operate against a statute. Finally, she I contended that even if it was the court which ordered the joinder of the Director

A for Lands it does not mean then that the usual procedure for suing the Government is thereby waived. She said by making the order the court and not intend that the suit should be brought in violation of the law.

B I am of the view that Mrs. Macha is right in her arguments. It was necessary to obtain the consent of the minister for Legal Affairs to sue the Director for Lands even if it was this court which made the order to sue or join him as a defendant. This is because an order of this court prevail and be complied with. So when the order to include the C Director for Lands was made what was expected was that the usual and normal procedure for suing a Government Officer as provided for in the Government proceedings Act would be followed. It was, as already indicted, not followed, and the suit is incompetent.

D I would have struck it out for incompetence but as I believe that the plaintiff may have been, because of my order, under the impression that there was no need to apply for and obtain a fiat to sue the Director for Lands as usual, I will not order that the suit be struck out but instead I order that it be stood over for three months from today and in E the meantime the plaintiff is to obtain the requisite consent under the Government Proceedings Act. If he will have failed to obtain the consent within that period, the suit will then be struck out - for the reason I have indicated already.

There was an application, too made by Mr. Nyange and which Mr. Tarimo opposed. The application was that he, F Mr. Nyange, had just been briefed and instructed to represent Timber Impregnation Limited, first defendant, and he needed time to amend the Written Statement of Defence previously filed by Mr. Kapinga.

Mr. Tarimo replied that so long as Kapinga, who had been representing the first defendant, had not formally G withdraw from the suit Mr. Nyange could not take over and start making application to amend the written Statement of Defence.
I think the requirement for advocates to formally withdraw from suits and before the courts is a requirement based H on practice and courtesy only. Mr. Nyange came with his clients. If the clients will recognize Mr. Kapinga as their advocate they would have objected to Mr. Nyange appearing on their behalf and from making the application he made. They did not do so and I take it that Mr. Kapinga no longer represents the first defendant; Mr. Nyange is the one who now represents them. I therefore overrule Mr. Tarimo's objection to the application made by Mr. Nyange. I Mr. Nyange, however, will have to amend the Written Statement of Defence in the manner he
1991 TLR p175
wants to amend it only after the plaintiff's suit has been consented to by the Minister for Legal Affairs as indicated A earlier on above.
Ordered accordingly. B
1991 TLR p175
C
[zRPz]REPUBLIC v RUGISHA KASHINDE AND SIDA JIBUGE 1991 TLR 175 (HC)

Court High Court of Tanzania - Tabora
Judge Korosso J

15 November, 1991
Flynote
Criminal law - Murder - Standard of Proof - Alleged identification of accused - Accused present in village - Not arrested until days later - Whether guilt proved beyond reasonable doubt - Penal Code, s.196. D
-Headnote
The accused persons stood jointly charged with the offence of murder on 20/1/87 contrary to section 196 of the Penal Code. The important evidence directly implicating the accused persons was that of one Kulwa d/o Lumwecha E (PW1) and one Ngwalu d/o Seni (PW2). The former alleged to have seen the deceased, her mother, lying on the ground and the accused persons assaulting the deceased. She testified to have seen the accused persons felling the deceased and slashing her with a panga. F
It was common knowledge that the offence took place on 20/1/87. It was also not disputed that the first accused was arrested on 21/1/87 and the second accused was not arrested until 25/1/87. There was an evidence that the second accused was absent from the village between 20/1/87 and 25/1/87. G
Held: (i) The alleged identification of the accused persons took place on 20/12/87. It is surprising that the first and second accused should have been arrested on 21/1/87 and 25/1/87, respectively,

especially considering that there H was evidence that the second accused was absent from the village. The prosecution incidence has not established the fault of the accused persons beyond reasonable doubt. Accordingly the accused person are not guilty as charged.

Case Information

Charge dismissed. I

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KOROSSO J

[zJDz]Judgment

A Korosso, J.: The 1st Accused, one Rugisha Kashinde and the 2nd accused one Sida Jibuge stands jointly charged with the offence of having murdered the deceased, one Geni d/o Satte in the village of Kondamoyo in the District of Urambo, Tabora Region, on 20th January 1987.

B One of the persecution witnesses was one Kulwa d/o Lumwecha (PW1). She testified that the Deceased was her mother with whom she lived in the village of Kondamoyo for many years until the date of the incident, she knew both the 1st Accused and 2nd Accused. She remembered that sometime back the 1st Accused and 2nd Accused had C ever lived with her uncle named Shija. She recalled that on the night in question her mother, the Deceased made a big fire outside their house. The fire was so bright that it illuminated an area up to 27 paces from where they had sat. About 9.00 p.m. they were still seated beside the big fire when she happened to see the 1st Accused and 2nd D Accused at a distance of 27 paces. She saw the 2nd Accused carrying a panga as well as a torch. She saw the 2nd Accused carrying a panga as well as a torch. The Deceased was just then heard asking as to who were those persons approaching there. The 1st Accused and the 2nd Accused continued walking towards them, until they E reached them. Both approached PW1 and then asked her to where was their mother. PW1 pointed at the Deceased. The 2nd Accused reacted by trampling on her back so that she fell to the ground. She got up and ran away, followed by her sister one Ngwalu (PW2). PW1 saw her mother, the Deceased running too. The 2nd F Accused seized PW1's cloth as a result of which it came off and she continued running still having an underwear on. In the course of her running, she saw her mother, the Deceased lying on the ground and the 1st Accused and 2nd Accused were seen assaulting the Deceased. She ran safely until she reached her sister's home. Her sister Holo d/o G Mbeja and PW1 raised an alarm, which attracted people to the scene. The 1st Accused and 2nd Accused were not amongst the person who went to the scene in response to the alarm.

Another witness was one Ngwalu d/o Geni (PW2). She testified that the Deceased was her mother. She knew both H Accuseds as her neighbours, in the village of Kondamoyo. On the night in question, the deceased, and herself were seated beside a fire when the 1st Accused and 2nd Accused happened to go where they were. On reaching them, the Accused had asked as to where was their mother. PW1 asked the 2nd Accused to speak in Sukuma I language because she didn't understand Kiswahili. The 1st Accused told the 2nd

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KOROSSO J

Accused speak Sukuma. The 2nd Accused repeated the question in Sukuma language. PW1 pointed at their A mother, the Deceased. The Accuseds felled the Deceased to the ground and

they slashed her with a panga. PW1 and PW2 ran away as they raised an alarm. They finally reached the home of their sister one Holo where they met on the way being with her husband. The 1st Accused was amongst the persons who had responded to the alarm. B She mentioned the 1st Accused and the 2nd Accused as having been responsible for the assault of the Deceased.
Another witness was a one No. 3013 D/sgt. Mbaga (PW3). PW3 testified that on 21/1/87, he was at the Police C station when the Deceased was brought there having some cut wounds on the head and on her right thigh. The Deceased died in hospital in the morning of 22/1/87. PW3 went to the village to visit the scene. He contacted one Kulwa (PW1) whose statement he had recorded. The statement of Kulwa (PW1) was produced and marked Exh. P1. The said Kulwa (PW1) had mentioned the 1st Accused and the 2nd Accused as having been the suspects. Both D Accuseds were consequently arrested.
In his defence the 1st Accused denied the charge. He deposed that on the night of 20/1/1987 he was asleep in his E house when one Samike Renagala who told him that the Deceased had been attacked. The 1st Accused get outside where he accompanied other persons to the house of the ten cell leader by the name of Maduka Mpalamino. They arrived at the scene where they found the Deceased bleed on the head and side. The Deceased mentioned one F Jamadas as having been the habit of accusing her as a witch before and that on many occasions she had reported one Jamadas to the ten cell leader. He went on to aver that at the Police station one Kulwa d/o Lumwecha (PW1) had also mentioned one Jamadas and unknown persons as having been the suspects. He admitted to had made two G statements to the Police Station produced and marked Exh. D1 and exhibit D2. He said that at the Police station one Kulwa (PW1) had also mentioned one Jamadas. The 1st Accused was also arrested by the police one mere suspicion that he had attacked the Deceased. H
The 2nd Accused giving on oath, denied the charge. He testified that he knew the Deceased as they lived in the same village. On 25/1/87, he was arrested at the home of one Ituju where he had stopped on his way home after he had been from his shamba. He was taken to the ten cell leader without being told what he had done. At the home of I the ten cell leader he was informed that he was the suspect.
1991 TLR p178
KOROSSO J
A Policemen were present. He was finally taken to the police station where he was interrogated and his statement was put down by D/Sgt. Mbaga (DW3). In his statement to the police, he utterly denied responsibility for the murder of the Deceased. He denied having ever gone to the house of the Deceased. He denied having ever gone to B the house of the Deceased on the night in question. He denied to have had any enmity with the Deceased.
He went on to aver that about 6.00 p.m. on 20/1/87 he ever went to the house of the 1st Accused bringing with him 3 chickens for safe-keeping. He admitted freely signing on the statement Exh. D3, yet he totally refuted the C evidence that he had ever told D/Sgt. Mbaga (FW3) that on 20/1/87 he had taken 1 chicken to the 1st Accused, for the purpose of using it for food. He admitted that he was in the habit of putting on black clothes. He expressed the belief that he had been arrested merely on suspicion that one of the attackers had put on black clothes.

He admitted D that PW1 and PW2 knew him, however, he rebutted their evidence that he and the 1st Accused had the Deceased on the night of 20/1/87. He stressed that PW1 and PW2 had sought to implicate him in the crime chiefly because their original suspect, one Jamadas Kakomala had been let out. He said he had not gone to the scene on E the night in question as he had not heard the alarm alleged to had been raised then.

After I had finished reading out the summing up to the Honourable Assessors, I kindly invited them to give their opinions on the case. The two Honourable Assessors were unanimous in their view that the evidence had not F established the guilt of the Accuseds beyond reasonable doubt.

Having gone through the evidence fairly carefully, I find myself in full agreement with the two honourable assessors.

The important evidence directly implicating the 1st and 2nd Accused is that of one Kulwa d/o Lumwecha (PW1) G and one Ngwalu d/o Sani (PW2). Both PW1 and PW2 claimed to had been with the Deceased outside their house where there was allegedly a big fire. Both claimed to had clearly identified the 1st Accused and 2nd Accused as having been the two persons who had attacked the Deceased. If it were true that PW1 and PW2 had mentioned the H Accuseds on the night of 20/1/87, how came that 1st Accused was arrested on 21/1/87 though PW2 had seen the 1st Accused being at the scene. It is still a surprise that the 2nd Accused should have been in the village of Kondamoyo without being arrested until on 25/1/87 if PW1 and PW2 had really mentioned the Accused on the I night. There is no evidence that the 2nd Accused had been absent

in the village between 20/1/87 and 25/1/87. There have been no evidence of a ten cell leader, village secretary or A village chairman as to whether or not PW1 and PW2 had ever mentioned the 1st Accused and the 2nd Accused on the night of 20/1/87.

In view of this doubtful in conclusion evidence as thus against the Accuseds, I feel constrained to declare the guilt of B the 1st Accused and 2nd Accused has not been proved.

I accordingly find the Accuseds not guilty.

I dismiss the charge and acquit the 1st and 2nd Accused of the offence of murder c/s 196 of the Penal Code. C

Order accordingly.

1991 TLR p179

D

[zRPz]HALIMA ATHUMANI v MAULIDI HAMISI 1991 TLR 179 (HC)

Court High Court of Tanzania - Dodoma
Judge Mwalusanya J

2 December, 1991 E
Flynote

Family Law - Divorce - Whether reconciliation of a Moslem couple by non-moslem body illegal.
Family Law - Reconciliation - Whether reference to a marriage conciliatory board always necessary. F
Family Law - Divorce - Marriage must be broken down beyond repair.
-Headnote
The appellant successfully applied for divorce at Utemini Primary Court in Singida District, against her husband, the G respondent. She sought divorce on the ground of cruelty on the part of her husband. The trial Court was satisfied that the husband had treated his wife with cruelty and granted the application for divorce. The respondent successfully appealed to the District Court. The district magistrate reversed the decision of the Primary Court for two reasons. First, that as the couple was Islamic, the body that attempted to reconcile them had no jurisdiction as it H was not an Islamic body.
Second, that the Marriage Conciliatory Board did not certify that it failed to reconcile the parties. The appellant appealed to the High Court. I
1991 TLR p180
MWALUSANYA J
A Held: (i) The mere fact that the Board that reconciled the parties was not a Moslem Conciliatory Board did not render the reconciliation a nullity;
(ii) under section 101 (f) of the Law of Marriage Act the court may dispense with reference to a Marriage B Conciliatory Board if it is satisfied that there are extraordinary circumstances which make reference to the Board impracticable;
(iii) the appellant had succeeded to prove that the marriage was broken down beyond repair.
Case Information
C Appeal allowed.
Editorial Note: Readers are advised to disregard the advice given by the judge for courts do not register divorces D but only determine whether to grant or refuse petitions for divorce under the Law of Marriage Act 1971.
[zJDz]Judgment
Mwalusanya, J.: The appellant Halima d/o Athuman successfully applied for divorce at Utemini Primary Court in Singida District, against her husband Maulidi s/o Hamisi the present respondent. She sought divorce on the ground E of cruelty on the part of her husband. The trial court was satisfied that the husband had treated his wife with cruelty and hence the dissolution of marriage that was made. However the husband successfully appealed to Singida District Court. That has prompted the wife to appeal to this court.
F It was common ground at the trial that the spouses in this case had contracted a Moslem marriage in 1983. The wife alleged at the trial that in the course of years he was regularly assaulting her and many times has threatened to kill her with a panga. She also alleged that at one time she was locked inside their house while the husband went on G safari. That was confirmed by a witness Mr. Hassan s/o Njiku (PW2). She also alleged that her husband insisted

to have sex against the order of nature but that she vehemently resisted. Efforts to have the spouses reconciled at the Arbitration Tribunal proved abortive.

H The District Court reversed the decision of the trial court first on the ground that:

As both parties belong to an Islamic community and their marriage was according to Islamic law, the proper board to I reconcile them was a board of Islamic community.

1991 TLR p181

MWALUSANYA J

The learned District Magistrate therefore held that since the board was not in accordance with section 103(2)(b) of A the Law of Marriage Act. No. 5/1971, therefore there was no reconciliation ever made. On my part I find that the learned District Magistrate was wrong. It is provided under section 104(7) of the Law of Marriage Act that:

The proceedings of a Board shall not be invalid by reason only of the fact that it did not have jurisdiction under section 105(2). B

Therefore the mere fact that it was not the Moslem Conciliatory Board that reconciled the parties, that does not C render the reconciliation a nullity. An ordinary Marriage conciliatory Board can perform those functions and that would be effectly alright. And it is doubtful if in Singida Township there is a proper Moslem Conciliatory Board which has been established in accordance with the complicated provisions enumerated in item No. 345 of D Appointment of Communal Conciliatory Boards G.N. 245 of 1971. Most likely the existing local Moslem conciliatory Boards in Singida Township have not registered with the Registrar of Marriages and Divorces in accordance with G.N. 245/1971, but nevertheless their functions are properly protected by section 104(7) of the E Law of Marriage Act. Therefore I hold that the Marriage Conciliatory Board in this case had jurisdiction to reconcile the parties. Then the learned District Magistrate went on to say that: F

Again even if the board was the proper board according to law to reconcile the parties, but it has not certified that it has failed to reconcile the parties. As I have gone through the contents of the letter dated 28/9/88 and I have found that only the petitioner had gone to the board with her present but appellant was not called and given an opportunity of being heard in G accordance with section 104(1) of the Law of Marriage Act.

The letter referred to above is dated 28/9/88 and it is issued by the Chairman of the Kibaoni Marriage Conciliatory H Board. I agree with the learned District Magistrate that as the husband was not given an opportunity of being heard, then there was no proper reconciliation by the Board. The position is that the matrimonial difficulty is regarded not to have been referred to any Marriage Conciliatory Board. I

1991 TLR p182

MWALUSANYA J

A However that is not the end of the matter. The learned District Magistrate should have considered the applicability of the provisions of section 101(f) of the Law of Marriage Act which dispenses with referring the matter to the Marriage Conciliatory Board where the court is satisfied that there were extraordinary circumstances which B make reference to the Board

impracticable. That phrase was considered by Onyiuke J. in the case of Zainat Khan v Abdullah Khan [1973] L.R.T. n. 57. The learned judge, inter alia said:

C The discretion conferred on the Court by paragraph (f) of section 101 should only be sparingly exercised and then only in circumstances where it is clear beyond any reasonable doubt that a reference to a Board is not a practical proposition. This may be due to the fact that the circumstances of the case are such that no expectation can be entertained that the Board will D be able to achieve any useful results and that any reference to it will be so much a waste of time and effort.

Thus "impracticable" in section 101(f) of the Law of Marriage Act was liberally interpreted such that it was not E limited to physical impracticability. Reading through the letter of the chairman of Kibaoni Marriage Conciliatory Board, one cannot fail to see that it was found useless to call the husband and for reconciliation as it would be a waste of time and efforts. The allegations were so serious such that any reference to the Board would not be a F practical preposition I think the trial court took it that way. Therefore the trial court was right to proceed to hear the case, even if it had not been referred to the Marriage Conciliatory Board. And I agree that the petitioner had succeed to prove that her marriage was broken down beyond repair. On my part I concur with the trial court in G dissolving the marriage in questions.

There is another matter which the learned District magistrate missed. Under the Law of Marriage Act, there are two ways in which Moslem spouses may seek dissolution of the marriage. The first method is the fashk divorce as H provided in section 107(1) and (2) of the Law of Marriage Act whereby a Moslem, like any other spouse, sets out to prove that the marriage is broken down beyond repair by either cruelty, adultery etc. This method applies to all spouses who are Moslems or non-Moslems.

Then there is the second method for Moslems only, which makes it easier for them to secure divorce. It is provided I under section 107(3) of the Law of Marriage Act that - subsequent to the granting

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by the Board of a certificate that it has failed to reconcile the parties either of them has done any act or thing which A would, but for the provisions of this Act, have dissolved the marriage in accordance with the Islamic law. Thus if the Board has failed to reconcile the parties, a Moslem spouses can proceed to demand a khului before a Sheikh (a wife securing her release through payment of a sum of money) or she can ask the Sheikh to grant divorce mubaraat B (mutual consent of spouses to divorce).

For a male Moslem he can issue three talaks. After getting the Khului, or divorce mubaraat or three talaks, then the concerned Moslem merely goes to court to have his divorce officially registered without requiring him or her to C prove that the marriage is irretrievably broken down. Therefore the learned District Magistrate should have so advised the parties. I hope in future she will not fail to advise the Moslem women, the easy way of securing divorce.

Be that as it may, the appeal succeeds. I allow the appeal with costs. The decision of the District Court is set aside, D while that of the trial court is restored.

Order accordingly. E
1991 TLR p183
F
[zRPz]JUMA SULTANI MKUGENZI v RAMADHANI AMIN ATHUMAN 1991 TLR 183 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mkwawa J

3 December, 1991
Flynote
Land law - Sale of a house on a surveyed plot - Lack of consent of the Commissioner for Lands - Whether specific performance can be ordered. G
-Headnote
The defendant's mother, now deceased, had taken a loan of Shs. 200,000/= from the plaintiff. After facing some problems, the deceased undertook to sell her house to the plaintiff at a price of Shs. 700,000/=. In the agreement, H signed by the parties, it was agreed that the said debt of Shs. 200,000/= be converted into the first instalment for the purchase price. The plaintiff deposited the balance of shs. 500,000/= with his advocate and the defendant was required to collect the same from him but he did not do so. The plaintiff prayed for an order of specific performance I for the sale of the house.
1991 TLR p184
MKWAWA J
A Held: On the basis of the agreement and the "Declaration of Intent" the defendant undertook to perform his part of the contract.
Case Information
Order accordingly.
[zJDz]Judgment
B Mkwawa, J.: In this case the plaintiff, Juma Sultan Mkugenzi, basically prays for an order for specific performance of a sale of a house. The prayer is based on the following events:
Sometime in June, 1988 one Mgeni d/o Mawazo who is the mother of the instant defendant, Ramadhani Athumani, C approached the plaintiff (to whom for brevity sake I will be referring to as PW.1) and asked him for a loan of Shs. 200,000/= to enable her to finalize payments against her in a court proceeding. It is common ground that the said Mgeni d/o Mawazo is now dead and that her son Ramadhani Athumani is her sole heir and legal representative (for D brevity sake I will be referring to them as the deceased and PW.1 respectively). It is further not in dispute and clearly demonstrated in the testimony is of PW.1 and DW.1 that though the deceased had initially received from PW.1 Shs. 200,000/= to enable her to secure a house No. 13, Plot No. 49 Block 'B', Magomeni, Dar es Salaam E which was a subject matter in the High Court in Probate and Administration Cause No. 63 of 1985; the deceased subsequently offered for sale the said house to PW.1 as she could not secure a loan in respect of the same from PW.1.

F It is in the evidence of both PW.1 and DW.1 that on June 29, 1988 the deceased and PW.1 entered into a written agreement for the sale of the said house. This agreement was drafted by a practising advocate (Exhibit P.1). The agreement inter alia provided for the payment of the purchase price as follows: Shs. 200,000/= to be paid at G once and the seller acknowledged receipt of the same. The balance of Shs. 500,000/= to be paid after the finalization of Probate and Administration Clause No. 63 of 1986. It is further common ground that Messrs. Mchora and Company Advocates were to ensure the transfers and ownership of the property were effected. It is common H ground that the deceased did not live to effect the said transfer of property, PW.1 being the sole heir and legal representative of the deceased committed himself in writing in what was described as "Declaration of Intent" (Exhibit Pa) to ensure that the transfer and ownership of the said property is effected. Once again this document was drafted I by and attested before practising advocates respectively.

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MKWAWA J

It is further in the testimony of PW.1 that the deceased and later on DW.1 had declined to effect the transfer and A collect the balance of Shs. 500,000/= though the said monies were in possession of their advocate i.e. Mr. Mchora. It is on these basis that the instant proceedings were instituted and hence the prayers for specific performance against the defendant to execute the Transfer Deed. B

On the other hand DW.1 blames PW.1 for defaulting in paying the said balance of Shs. 500,000/=. Briefly, these are facts culminating to the instant proceedings.

Mr. Semgalawe, the learned advocate for PW.1, urged this court to compel DW.1 to carry out the intention of the C parties by executing the Transfer deed as PW.1 had partly conformed the intended sale agreement by paying Shs. 200,000/= to DW.1's mother who at the relevant period was the owner of the house in question.

In rebuttal Professor Fimbo, learned advocate for DW.1, contended that part performance i.e. payment of Shs. D 200,000/= is without legal effect so long as the consent of the commissioner was lacking. He sentenced that the said consent was a necessary requisite in dispossession of an interest in land. In support of this proposition the learned advocate cited several authorities regarding the necessity of receiving the consent in land disposition. The learned E counsel will forgive me for not referring to the numerous authorities cited in support of this argument. I will only refer to one of them i.e. Nitin Coffee Estate Ltd. v United Engineering Works Ltd. - Ci v App. No. 15 of 1988 Ar. Registry (unreported) Prof. Fimbo argued that having regard to regulation 3 of the Land Regulations 1948 K as F amended in 1960 - G.N. 101 of 1960 and the decision of the Court of Appeal - Tanzania in Nitin's case (supra) the agreement - Exhibit P1 - is in operative and can not be enforced for want of consent.

Prof. Fimbo further argued that having regard to paragraph 2 of the said agreement (Exh. P.1) the parties had G envisaged entering into the agreement in future. This being the state of affairs Prof. Fimbo contended that issue No. 1 of the agreed issues should be answered in the negative and the sum of Shs. 200,000/= advanced by PW.1 to the deceased should be considered as a loan. Prof. Fimbo further argued that the said loan is not recoverable in the H instant court

proceedings as PW.1 did not cover this issue in his plaint and/or his advocate's submission in this court. Lastly but not least Prof. Fimbo argued that the prayer for specific performance can not be granted to PW.1 as he has not shown reasons why such discretionary I

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MKWAWA J

A prayer should be granted particularly in the absence of consent as statutorily required in such dispositions.

I find it pertinent to mention at this juncture that though the parties in this suit did not impress one as being sophisticated persons it has been amply demonstrated from the brief resume of facts that right from the very B beginning the parties and their eye "on the law". This, they did by engaging the services of practising advocate. That not withstanding it is now evident that their caution did not bear fruits. Their efforts had fallen on barren land and the C once good relationship between the parties has now gone sour and they now come to "law" to seek for redress.

Though the matter before this court stems from very simple facts the matter is far from being easy. Having regard to the issues raised in this matter I must confess that the matter is not an easy one to decide one way or the other. The D issues formed by the court with the assistance of both learned counsel are as follows:

1. Was there an agreement for the sale for the house in disputed?
2. Is the agreement in-operative for lack of approval of the Commissioner of Land?

E 3. Is the agreement void for impossibility?

4. To what relief are the parties entitled to?

F In answering the first point raised, namely whether there was an agreement for the sale of the house, one has to look on the versions of PW.1 as these are the only witnesses before this court and Exh. P.1 and Exh. P.4. On a careful and sober evaluation of the testimonies of the parties to this suit and the contents in exh. P.1 (The agreement G for a sale of a house) and Exh. P.4 (Declaration of Intent) it leaves no doubt in my mind that the deceased who is DW.1's mother badly and urgently needed money from PW.1. It is uncontroverted that PW.1 did not loan the same to her. Undoubtedly PW.1 took advantage of the situation i.e. the deceased's plight and managed to have the house H now in dispute sold to him for the sum of Shs. 700,000/=. Issue No. 1 is thus some what answered in the affirmative. I shall revisit this matter.

The central issue/question that I have now to consider is whether as agreement obtained under such circumstances I and having regard to the fact that it was a land disposition issue can be enforced by this court. In my view this point embraces issues no. 2 and no. 3 collectively.

1991 TLR p187

MKWAWA J

In defendant (DW.1) in paras 5, 6 and 7 of his written statement of defence appeals as follows: A

5. The Defendant denies the contents of paragraphs 5.55 6 and 7 of the Plaint. The Defendant contends that the agreement described in paragraph 3 of the Plaint was merely an agreement to enter into and agreement for the sale B of the house in dispute held under a right of occupancy.

6. In the alternative, the Defendant contends that the said agreement is void for impossibility. The defendant contends that at the date of the said agreement Mgeni Mawazo, deceased had no interest/estate int he house in dispute, the C right of occupancy had not been transferred to her.

7. In the alternative, the Defendant contends that the said agreement is in operative for lack of approval of the D Commissioner for Lands".

Prof. Fimbo's main submission against the Plaintiff's prayer is based on regulation 3 of the Land Regulations, 1948 as amended by G.N. 101 of 1960, so far as it is material, made as follows: E

3.(1) A disposition of a right of occupancy shall not be operative unless it is in writing and unless and until it is approved by the (President) F

(2)....

(3) In this regulation disposition means

(a) a conveyance or assignment other than by way of mortgage, or a gift, settlement, deed of portion, assent, vesting declaration, or a sale in execution of an order of a court. G

Prof. Fimbo contends that courts will not enforce a claim which can only be established by relying upon a transaction declared by the law to be in operative for lack approval. In support of this proposition Prof. Fimbo has referred me H to several authorities including Nitin's case (supra).

Before I make a finding as to whether the case now under consideration involves an agreement which is in operative or not, I find it pertinent to reproduce all the clauses in Exhibit P.1. The same runs as follows: I

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MKWAWA J

A AGREEMENT FOR SALE OF A HOUSE

THIS AGREEMENT is made this 29th day of June, 1988 between BI MGENI MAWAZO (the Seller) of Magomeni Plot No. 40 B Block R. House No. 13 Morogoro Road of the one part, and MR. JUMA SULTAN MKUGENZI (the purchaser) of P.O. Box 25218 Dar es Salaam of the other part, it is hereby agreed:

1. That the purchaser shall advance Shs. 200,000/= (two hundred thousand shillings) to the seller to enable the latter to C finalize administration expenses in respect of the estate of the deceased MARIAMU MAWAZO the registered owner of House No. 13 Morogoro Road which is the property to be sold to the said purchaser. The seller hereby D acknowledges receipt of the said amount.

2. The seller undertakes to effect the finalization Probate and Administration Course No. 63 of 1986 and subsequently to enter into a sale Agreement with the purchaser.

E 3. Both parties agree and covenant Messrs MCHORA AND COMPANY, to ensure the transfers of ownership of the property.

4. The agreed purchase price is Shs. 700,000/= (seven hundred thousand only) from which the sum mentioned under F paragraph 1 is mentioned. Wherefore the parties have

signified their agreement the terms and conditions in this agreement on the date aforementioned by appending their respective names.

G It is also common ground that on February 23, 1990 DW.1 made what was described as "Declaration of Intent" (Exhibit P.4). This document like Exhibit P.1 was drawn and attested before a practising advocate. I find it H appropriate to produce in full some of the relevant paragraphs of said "Declaration of Intent" these run as follows:

I 2. That I am the only son of the late MGENI BINTI MAWAZO and that I am the only heir of the deceased's estate.

5. That the deceased received advance payment of Shs. 200,000/= from the said JUMA SULTANI MKUGENZI A immediately after the execution of the sale agreement.

6. That the reminder of the purchase price was deposited by the said JUMA SULTANI MKUGENZI to Mchora and B Company, Advocates for making further payment to the deceased.

7. That later, the deceased decided to change her mind on the said sale, refused to collect the said balance of C payments and also refused to effect transfer formalities. Hence High Court Civil Case No. 76/89.

8. That, consequently, I undertake to collect the balance of the purchase price from M/S MCHORA & CO. ADVOCATES. D

9. That also undertake to ensure that the house is transferred into the name of JUMA SULTANI MKUGENZI. E

10. That this declaration has been made voluntarily,consciously and without any undue influence.

Looking at the evidence adduced by PW.1 and DW.1 coupled with clause 2 of the said agreement (Exh. P.1) and F paragraphs 7 and 10 of the Declaration of Intent (Exh. P.4) the intention of parties becomes quite evident. One sees that the purchaser made an initial payment to the vendor i.e. Shs. 200,000/=. He further deposited the remaining Shs. 500,000/= with an advocate, presumably, pending consent to the transaction being given by the commissioner G together with delivery certificate of title upon execution of Exhibit P.3. It is further evident from exhibit P.1 and PW.4 particularly Paras 7 and 10 Exh. P.4 that the vendor had failed to fulfil the agreement by failing to deliver an unencumbered title. The defendant (PW.1) has in no uncertain terms admitted that he was in breach of the H agreement but now undertakes to execute it. It leaves no doubt in my mind that Exhibit P.1 and P.4 are executory documents. As the defendant(DW.1) is grantor in this case I think the two documents (Exhibits P.1 and P.4) should be construed if necessarily contra proferentum. Then words in these documents albeit not diligently written, should I be given their proper construction. Besides, it is a general rule that

A an instrument should be construed according to its natural meaning in the light of the circumstances in which it was executed. The decisions in Gathuti Hotel v Fazar Ilah [1957] E.A. 17 (CA-K) and S.L. Patel and Another v Dhana Singh s/h Hakan Singh [1962] E.A. 32 (CA-K) are very relevant.

B I have carefully and very soberly appraised the various arguments raised by Prof. Fimbo. I would have supported them had the defendant (DW.1) not made the Declaration of Intent - Exhibit P.4. I say so in the light of what I have, hopefully, demonstrated in my foregone analysis; and I need not repeat myself.

C I now turn to the last issue. The purchaser (PW.1) has brought a suit for specific performance. As I have already stated the remedy sought is an equitable one. The question is whether this is a case on which an order for specific performance should be made. In the instant matter the plaintiff has claimed specific performance of their agreement D with the Defendant. There has been no alternative claim for damages.

In my view the Defendant cannot rely on his own failure to do that from the doing of which he would ultimately have no lawful escape. It was implicit in this "Declaration of Intent - (Exh. P.4) that he thereby undertook to take the E necessary steps to fulfil what his mother had agreed to do (see Exh. P.1). "Equity looks on that as done which ought to be done. In favour of persons entitled specifically to enforce a contract, equity events an agreement to do a thing F as if the thing were already done "per Dacon, J.A.; Abdul Razak bin Mbarak v Feraj bin Abed el-Aweni and other 23 E.A.C.A. 120 at pp. 122 [1956] who quoted with approval Lindly, L.J. in Re Anstis (1886) 31 Ch. at pp. 605-606. Another view of the situation is that which was expressed by the Judicial Committee in Howard v G Miller [1915] A.C. at p. 326 as follows: "It is sometimes said that under a contract for the sale of an interest in land the vendor becomes a trustee for the purchaser of the interest contracted to be sole subject to a loan for the purchase money; but however useful such a statement may be made as illustrating a general principle of equity, it is H only true if and so far as a court of equity would under all the circumstances of the case grant specific performance of the contract".

In the light of the foregoing I think the agreement, though admittedly somewhat obscure is not too uncertain to be enforced. I would accordingly allow the claim and order specific performance of the agreement as prayed in para I II(1) of the plaint. Having regard to the history of the case parties to bear their costs. It is so ordered.

Order accordingly.

1991 TLR p191

A

[zRPz]MKAMANGI ELIFURAHA v MWINYISHEHE MWINYISHEHE 1991 TLR 191 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Ramadhani JJA and Mnzavas JJA and Mapigano Ag JA

3 December, 1991 B

Flynote

Contract - Gift - No need to prove consideration.

-Headnote

When the appellant wanted to buy a plot of land from the respondent the latter decided to give it to the former free C of charge. The giving of the plot of land was evidenced in writing (Exh. B). After the appellant had built a house on the plot the respondent wanted to have his plot of land back. The first appellate court held that the document was not evidence of a contract between the parties as there was no consideration. D

Held: Exhibit B evidenced a gift that was actually given to the donee, the appellant, by the donor, the respondent.

Case Information

Appeal allowed. E

Maira, for the respondent.

[zJDz]Judgment

Ramadhani, and Mnzavas, JJ.A. and Mapigano Ag. J.A.: It has never been in dispute that the appellant, F Nkamangi Elifuraha, bought a "shamba" from the respondent, Mwinyishehe, for Shs. 1,500/=. What has brought the parties to court is the plot on which the appellant has built a house.

The respondent claims that he had permitted the appellant to put up a temporary shed as a store for building G materials for the house she was to build on the shamba she had bought. The respondent, who was the plaintiff at the Primary Court of Buguruni, brought two witnesses: John Mgota (S.W.2) and Ramadhani Athumani (S.W.3) in support of his case. The appellant, on the other hand, claimed that the plot in dispute had been a subject matter of H sale between the respondent and another man who defaulted. The appellant then wanted to buy the plot but the respondent decided to give it to her free of charge and this was evidenced in writing, Exhibit B.

The Primary Court, without considering Exhibit B, believed the two witnesses of the plaintiff and decided in his I favour. The

A defendant, i.e. the present appellant, appealed to the District Court which considered Exhibit B and decided in favour of the appellant. The respondent appealed to the High Court where Babati, J. restored the decision of the Primary Court and hence this third appeal.

B In his judgment Babati, J. questioned the genuiness of Exhibit B and also faulted the District Court for regarding Exhibit B as a contract while there was no consideration.

Before us the appellant was advocated for by Mr Maira, learned counsel. He had six grounds of appeal. First, Mr Maira argued that the learned judge was wrong in finding that there was no consideration. Second, it has been C submitted that even if Exhibit B is not taken to be a contract it is evidence of a legal gift. Third, the learned judge erred to hold, in a second appeal, that Exhibit B was fake when that was not contested at the trial. Fourth, the learned judge erred in holding that the contents of Exhibit B were not satisfactorily proved when they had not been

D disputed in the two lower courts. Fifth, the learned judge erred in holding that there was a implied consent for the building of the house. Lastly, that the whole proceedings before the Primary Court were null and void as the magistrate, contrary to the law, summed up to the assessors.

E We shall treat the six grounds as three lots. The first lot is the effect of the summing up by the Primary Court Magistrate to the assessors. The second is the legal issues concerning Exhibit B.

Lastly is the issue of consent for the building of the house on the disputed plot. The respondent did not have legal F representation therefore there were no replies to the points of law raised by the appellants.

As for the summing up Mr Maira submitted that it was contrary to Rule 3(3) of the Magistrate's Courts (Primary Courts) (Judgment of Court) Rules, 1987 GN. 2/88 which states:

G (3) For the avoidance of doubt a magistrate shall not, in lieu of or in addition to, the consultation referred to in sub rule (1) of this Rule, be entitled to sum up the other members of the court.

H Mr Maira contended that the use of the word "shall" makes it imperative that the magistrate is not to sum up to the assessors. In this case, Mr Maira said, the magistrate summed up, according to the counsel, the summing up I was fatal as it would appear to have directed the assessors as to what opinion they should give at the end of the day. It is our well considered opinion that though the

summing up was misconceived, it was innocuous. It was not fatal and it did not occasion any injustice. Thus though A the sub rule is couched in imperative terms that oversight, we feel, is curable.

A number of submissions have been made with regard to Exhibit B. The first one was that the learned judge was wrong to have regarded Exhibit B as fake. Mr Maira said that the learned judge had no right to do so. He cited B Kanji v Gailoy & Roberts Limited [1959] E.A. 521. Mr Maira contended that the respondent did not object to Exhibit B being tendered and its authenticity had not been questioned at any time. Mr Maira conceded that the records do not show when Exhibit B was tendered in evidence though it has been given an identification letter. C

However, we are convinced that it was properly tendered and was never questioned. In fact during the hearing of this appeal the respondent himself admitted that there was a note which was written after their agreement. D Therefore, the learned judge was wrong, at the hearing of a second appeal, to doubt the genuiness of the document or to require its contents to have been proved to the satisfaction of the lower court. The Privy Council in Kanji v Gailey & Roberts gave an opinion that it would be wrong for an appellate court to upset the judgment of the trial E judge on the ground that it was not open to him to arrive at the conclusions of facts which he did. So Exhibit B must be taken to have been genuine. But what is its value?

The learned judge held that it was not evidence of a contract between the parties as there was no consideration. F That is so. However, Mr Maira submitted that Exhibit B is evidence of a gift by the respondent to the appellant. He cited Section 25(2) of the Law of Contract Ordinance Cap. 433 which provides that:

(2) Nothing in this section shall affect the validity, as between the donor and donee, of any gift actually made. G

In sub section (1) it is provided that "An agreement made without consideration is void ..." and then follows three exceptions. So sub-section (2) saves gifts from the requirements of consideration. We are satisfied that Exhibit B H evidenced a gift that was actually given to the donee, the appellant, by the donor, the respondent.

The last lot of rounds of appeal is whether or not there was consent for the building of the house on the plot by the appellant. Mr Maira submitted that there was at least an implied consent. He asked how could a big house be built I and roofed with iron sheets

A and then rented out without the respondent raising a finger? Admittedly this is a question of fact which does not concern us at this stage of appeal.

However, the determination of this point depends on the determination of certain points of law. Since we have B found that the genuiness of Exhibit B could not legally be challenged by the learned judge and that it was evidence of a gift and as such was unaffected by the absence of consideration, then it follows that there was consent. We feel that we better reproduce Exhibit B which was written on 7/6/81:

C Mimi Fulani Bin Mwishehe Lubaluba natoa kiwanja cha kujenga nyumba kwa Mwalimu Mkamangi Elifuraha bila hata hela moja. Na ana haki ya kuuza bila tatizo moja, na anahaki akifa mwenyewe wanaweza kurisi watoto wake bila tatizo lolote. D Nimetowa kiwanja hicho shahidi mbele ya mjumbe Bwana Johari Nyata ni mjumbe wa shina hili. Shahidi wa pili Ramadhani Amani, shahidi wa tatu Jorome Dismasi.

Then there followed the thumb print of the donor, the signature of the donee and that of the cell leader.

E The words of that document are very clear ad unambiguous. The respondent himself said before us:

"Tunagombania shamba na sio kiwanja cha kujengea. Hicho nilimpa na kama ataishi kwa heshima sitamfukuza. Lakini F yeye amechukua shamba na kulifanya lake kwa kuzungusha seng'enge".

The respondent was accompanied to this court by his son, Mohamed Mwinshehe Ubwa, who failed to hold himself G under control but manifested uneasiness by constantly jutting up his finger. As the respondent was extremely old, and as Mr Maira did not object, we allowed Mohamed to speak for the respondent. He started by saying that the H respondent could not give out any piece of land without him, Mohamed, the son, being consulted and in this case he was not. We warned him just to tell us the case of the respondent and no more. He then said that what is in dispute is the plot on which the house has been built. He went on to say that the

fence of barbed wire has been put I closely around the house and that it has not enclosed any part of the shamba. This explanation is different from that of the respondent himself.
1991 TLR p195
RAMADHANI AND MNZAVAS JJA AND MAPIGANO AG JA
It is our opinion that the respondent gave the appellant a plot on which to build a house as evidenced by Exhibit B A and as he has himself recapitulated before us. As for that plot on which the house stands there is no dispute between the respondent and the appellant, what the respondent objects to is the enclosure of some parts of his shamba by the appellant. B
We do not have any evidence as to how big or small is the part of the shamba which has been so enclosed by the appellant. In his testimony at the Primary Court the respondent said:

Kesho yake nikaona ile sehemu niliyompa mdaiwa anaweka sen'genge na kuongeza hata sehemu nyingine ambayo C sikumpa.

It has also never been disputed that within the plot given to the appellant there are two coconut trees belonging to the respondent. The appellant wanted to buy these but the respondent refused the offer. D
We are satisfied that the respondent gave the appellant a plot on which to built a house. What is disputed is the piece of land surrounding the house. For lack of evidence of the width of this surrounding land we order the District E Court to go and determine it. A house must have some open space around it. In our opinion a piece of land three meters wide all around the house in reasonable. If the enclosed area is more than three metres then the fence should be pulled towards the house to leave a piece of land three metres wide. But if the open space is three metres or less F than it should be left as it is.
Appeal is allowed as explained above. Each party to bear his own costs. G
Appeal allowed.
1991 TLR p196
A
[zRPz]MARIAM ABDALLAH FUNDI v KASSIM ABDALLAH FARSI 1991 TLR 196 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Ramadhani JJA and Mnzavas JJA and Mapigano Ag JA

B 3 December, 1991
Flynote
Civil Practice and Procedure - Appeal rules - Memorandum of Appeal to High Court not accompanied by copy of decree C appealed from - High Court proceeds to hear and determine appeal - Whether appeal properly before High Court.
-Headnote
This case involved a dispute based on sale of a house. The plaintiff appellant won the case in the District Court and lost it on appeal to the High Court by the defendant/respondent. On appeal to the Court of Appeal it was argued D that the memorandum of appeal to the High Court was

not accompanied by a copy of the decree appealed from as required by O.XXXIX R.1(1) of the Civil Procedure Code, 1966.

E Held: (i) O. XXXIX R.1 is mandatory in requiring every memorandum of appeal to be accompanied by a copy of the decree or order appealed from and that where an appellant has failed to comply with this provision the appeal is not properly before the court and must be dismissed;

F (ii) the learned judge ought to have dismissed the appeal which must be treated as having been null and void.

Case Information

Appeal allowed.

Marando, for the appellant.

[zJDz]Judgment

G Ramadhani and Mnzavas, JJ.A. and Mapigano, Ag. J.A.: The appellant, Mariam Abdallah Fundi, is a minor whose affairs have been conducted through her next friend, one Rajabu Alli Hamidi. The respondent, Kassim Abdallah Farsi, was the brother and now is the administrator of the estate of Fatuma Abdallah Farsi who died H intestate on 14th November, 1988.

Before her death the deceased had entered into a contract for the sale of her house Plot 52 Block "K" in LINDI to the appellant for Shs. 300,000/=. On 16th August, 1988 the contract was signed by the parties and a down I payment of Shs. 30,000/= was made (Exh. A). Then on 12th September, 1988 an instalment of Shs. 120,000/=

was paid by the appellant through Mr Hamidi (Exh. B). However, before the appellant finished paying and before A she obtained possession, the deceased died. The appellant then sought to complete paying the contract price to the respondent and so to come into possession of the house but the latter refused to receive payment and would rather refund the money paid. B

The District Court of Mtwara decided in favour of the appellant who was then the plaintiff. The present respondent appealed to the High Court where he succeeded.

This now is an appeal from that decision. Before us the appellant was represented by Mr Marando, learned C advocate. He had four grounds of appeal. But we feel the appeal can be disposed of on the first ground. Mr Marando submitted that the memorandum of appeal to the High Court was not accompanied with a copy of the decree as required by O.XXXIX R.1(1) of the Civil Procedure Code, 1966. D

The respondent, on the other hand, appeared in person and, as a layman, did not advance any counter argument. But even if he were represented, his counsel would have had an unenviable task because that order provides: E

> Every appeal shall be preferred in the form of memorandum signed by the appellant or his advocate ... The memorandum shall be accompanied by a copy of the decree appealed from ....

It has been held a number of times: F

That 0.39, R.1 is mandatory in requiring every memorandum of appeal to be accompanied by a copy of the decree or order appealed from, and that where an appellant has failed to comply with this provisions, the appeal is not properly before the G court and must be dismissed. Munshiran & Co. v Star Soda Water Factory [1934], 16 K.L.R. 50 which was followed in Kotak Ltd. v Kooverji (1967) E.A. 348.

The learned judge in this appeal overlooked that fact and went ahead to determine the appeal which was not H properly before him instead of dismissing it. So what is now the position? We must treat as done that which ought to have been done. The learned judge ought to have dismissed the appeal but did not. We must treat the appeal I

A to have been null and void. We are then left with the judgment of the District Court which was in favour of the appellant.

Incidentally, we have made two observations in our perusal of the record. One, Exh. A and Exh. B have not been B stamped. But this is not fatal as the stamping could legally be made subsequently. Secondly, the house being on a registered land its disposition would require the consent of the commissioner for Lands.

After saying so, we allow the appeal with costs.

Appeal allowed.

D

[zRPz]THE EXECUTIVE SECRETARY WAKF AND TRUST COMMISSION MAMBOMSIIGE ZANZIBAR v SAIDE SALUM AMBAR 1991 TLR 198 (CA)

Court Court of Appeal of Tanzania - Zanzibar
Judge Makame JJA, Kisanga JJA and Omar JJA

E 6 December, 1991

Flynote

Civil Practice and Procedure - Appeals to Court of Appeal- Appeal from an order refusing to set aside an ex-parte decree - F Whether leave is a pre-requisite - Appellate Jurisdiction Act, 1979 -Headnote

The High Court of Zanzibar gave an ex-parte judgment in favour of the respondent. The appellant then applied to have the ex-parte judgment set aside but the application was refused. So he decided to appeal against the decision G of the High Court refusing the application to the Court of Appeal. No leave was sought and obtained to appeal to the Court of Appeal.

Held: Appealing from an order refusing to set aside an ex-parte judgment comes under sub-section (c) of section 5 H of the Appellate Jurisdiction Act, 1979 for which it is necessary to obtain leave first. As no such leave was sought and obtained this intended appeal in incompetent.

Case Information

I Appeal dismissed.
1991 TLR p199
MAKAME, KISANGA AND OMAR JJA
Muccadam, for the appellant A
Kalunga, for the respondent
[zJDz]Judgment
Makame, Kisanga and Omar, JJ.A.: This appeal arises from a dispute over a house of which the appellant is the landlord and the respondent the tenant: We assume that Saide Salmin Ambar is the one person as Saide Salmin B Islam.
It is not necessary to go into the details of the controversy for the purpose of the task immediately in front of us. Enough it is to say that it was the present respondent who took the dispute to the High Court of Zanzibar sitting at Vuga and that Mnilla R.M., (Extended Jurisdiction), in an ex-parte judgment, found her still the lawful tenant of the C present appellant whom he also ordered to pay the present respondent some damages.
The appellant applied to have the ex-parte judgment set aside but the application was refused. He has now come D to this Court wanting to appeal against that order refusing to set aside the ex-parte judgment and is being represented by Mr Muccadam, learned advocate. The respondent is advocated for by Mr Kalunga, learned counsel.
Mr Muccadam filed a Notice of Motion asking to be permitted to file a supplementary record because, he said, E High Court Misc. Application No. 10 of 1991 had not been brought to his attention when he filed the record of appeal: That Misc. Application contained, inter alia, his client's affidavit explaining the reasons why the ex-parte judgment should be set aside. F
Mr. Kalunga resisted Mr Muccadam's application before us and submitted that Mr Muccadam had not really handled his brief with any seriousness otherwise he would have made sure that he had all the necessary papers. We wish to pause here and observe that Mr Muccadam should not have made a general search for the alleged affidavit. G He should have specifically asked for this file for Misc. application No. 10 of 1991 because Mr Mnilla's Rulling clearly indicated it was in that Misc. Application, 10 of 1991, and not in the main civil case or any other cause.
It appeared to the court that the application before us would turn on a different issue, infact, and accordingly we H invited both counsel to address us on that one. The issue is, whether the intending appellant was entitled to come on appeal as of right, or whether he had first to obtain leave to appeal against the order refusing to set aside the ex-parte judgment. Mr Muccadam submitted that the order by Mr Mmilla was itself a decree so he did not have to I obtain leave
1991 TLR p200
A first. He was entitled to appeal as of right. Mr Kalunga argued that Mr Muccadam should have applied for leave.
Appeals to this court are governed by the Appellate Jurisdiction Act, 1979, section 5. Subsection (a) and (b) set B out all the situations in which a party may appeal as of right while subsection (c) provides:

With the leave of the High Court or of the Court of Appeal, against every other decree, order, judgment or finding of the High C Court.

We are of the considered view that appealing from an order refusing to set aside an ex-parte judgment does not come under sub-sections (a) or (b). It comes, rather, under subsection (c), for which it is necessary to obtain leave D first. As no such leave was sought and obtained, this intended appeal is incompetently before us. We accordingly strike it out with costs.

Appeal dismissed.

1991 TLR p200

F

[zRPz]MASANJA MAZAMBI v REPUBLIC 1991 TLR 200 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Ramadhani JJA and Mnzavas JJA and Mapigano Ag JA

23 December, 1991

Flynote

G Evidence -Recorded statement of accused - Objection to its being tendered - What court to do.

Headnot

H The appellant who was convicted of murder appealed to the Court of Appeal. One of the arguments he raised on appeal was that his recorded statement was admitted in evidence notwithstanding his objection to tendering of the name.

I Held:(i) A trial within a trial has to be conducted whenever an accused person objects to the tendering of any statement he has recorded.

1991 TLR p201

RAMADHANI AND MNZAVAS JJA NAD MAPIGANO AG JA

(ii) Even without the recorded statement the evidence of P.W.1 and P.W.2 is enough to support the A conviction.

Case Information

Appeal dismissed.

Matata, for the appellant B

Mussa, for the respondent.

[zJDz]Judgment

Ramadhani, and Mnzavas, JJ.A. and Mapigano, Ag. J.A.: Before us came Mr Matata, learned counsel, on behalf of the appellant, Masanja Mazambi, who was convicted of the murder of Deha d/o Malaba at Mitindo C Misungwi, Kwimba District, on or about 13th May, 1988. The learned advocate had four reasons for challenging the judgment of Masanche, J. who presided over the trial before the High Court of Tanzania at Mwanza.

First, Mr Matata said the learned trial judge was wrong to admit the cautioned statement of the appellant as Exh. D P.3. Then, he maintained that the testimonies of P.W.1 and P.W.2 ought to have been rejected as the appellant made an involuntary confession to them. Yet, the learned advocates argued that the learned judge erred in holding that the appellant was an aider and

abbetor. Lastly, Mr Matata contended that the defence of compulsion was E available to the appellant.

The respondent/Republic was represented by Mr Mussa, learned Senior State Attorney, who supported the findings of the learned judge as being firmly grounded on the properly received evidence before him. F

The learned trial judge believed Paulo Fita Kasambale, the chairman of Misungwi village (P.W.1) and Paulo Ruhumbika, the Secretary of the same village (P.W.2) who, in the main, said that the deceased was found dead at her house after having been slashed by a panga by unknown persons. Somehow the sungusungu got wind of who G the assailant was and so they netted one Jagi Magangana who isolated the appellant as his associate. It is a pity that Jagi died before the trial. The appellant was then sent to the C.C.M. Branch where, under interrogation of the Sungusungu, owned the killing. The appellant told P.Ws 1 and 2 that he was taken to the house of the deceased by H Jagi without knowing the purpose. While there he was given a stick and a torch. His assignment was to hit the iron sheet door of the deceased's house and bark orders of lying down to the inmates of the house and to prohibit neighbours from coming out of their houses. The appellant did that obediently while Jagi I

A broke into the house and, after dragging the poor lady to the door, hacked her with the panga he was carrying. Jagi and the appellant then swiftly abandoned the scene. The appellant made a cautioned statement before the Police and that was admitted as Exh. P3 and now forms the first ground of this appeal.

B Mr Matata had three reasons in attacking the admissibility of that statement. First, he said that it was a hearsay piece of evidence since it was made through an interpreter who was not called to testify. He said that in R v Mabara Festo (1936) 3 E.A.C.A. 119 it was held that such statement was inadmissible. Then he said that the C provisions of section 57(4) of the C.P.A. were not complied with. Lastly, he pointed out that there was not a trial within a trial. On the other hand, Mr Mussa said that the statement was admissibly despite the fact that the interpreter was not called to testify. He cited D.P.P. v Regina Karantini and Another Criminal Appeal No. 110 D of 1988 (unreported) at p.5 which held such statement to be admissible but not reliable.

We agree with Mr Matata that the statement was inadmissible for the failure to hold a trial within a trial. When E A.S.P. Mohamed Maganda (P.W.3) wanted to tender the statement, Mr Magongo, the defence counsel at the trial, objected and prayed for a trial within a trial but he withdraw with prayer upon being asked a few questions from the bench. The was must unfortunate. That prayer should not have been refused or even objected to by the F prosecution. A trial within a trial has to be conducted whenever an accused person objects to the tendering of any statement he has recorded. We do not find it necessary to go into the non-compliance with section 57 of the C.P.A. or the two authorities that were cited to us.

G Mr Matata submitted that once Exh. P.3 is excluded then there is no evidence left on which to base a conviction because of the inconsistencies in the testimonies of P.Ws 1 and 2. He then said that the Sungusungu are notorious for torture and that is the treatment the appellant

claimed to have received while in their custody. The learned counsel said that the learned judge brushed off that claim on grounds that the scars which the appellant exhibited to H support his claim were insignificant. Mr Matata submitted that the learned judge viewed the scars in 1991 while the injuries had been inflicted in 1988 and that the scars had faded away.

We agree with Mr Mussa that even without Exh. P.3 the evidence of P.W.1 and P.W.2 is enough to support the I conviction. Mr Matata did not quote to us any example of contradictions between P.W.1 and P.W.2. Admittedly there were minor variations in what

they said which are due to the lapse of time and are healthy sign that they had not rehearsed the evidence. Besides A that, the learned judge who tried the case heard and observed the witnesses when testifying and believed them.

The third ground of appeal is baseless. Mr Matata conceded that if P.Ws 1 and 2 are believed then the appellant was aider and abbetor. B

As for the last ground, with respect to Mr Matata, it is hopeless. The defence of compulsion is not at all available to the appellant. Even assuming that there was compulsion, then it was not "during the whole of the time" the offence was committed. We thus dismiss the appeal. C

Appeal dismissed.

1990
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12. The Hon. Mr. Justice M. Mwakibete Puisne Judge
13. The Hon. Mr. Justice H.E.D. Sisya Puisne Judge
14. The Hon. Mr. Justice Y.S. Rubama Puisne Judge
15. The Hon. Mr. Justice C. Mtenga Puisne Judge
16. The Hon. Mr. Justice A.G.G. Korosso Puisne Judge
17. The Hon. Mr. Justice A. Bahati Puisne Judge
18. The Hon. Mr. Justice H.A. Msumi Puisne Judge
19. The Hon. Mr. Justice J.L. Mwalusanya Puisne Judge

20. The Hon. Mr. Justice E.E. Kazimoto Puisne Judge
21. The Hon. Mr. Justice B.P. Moshi Puisne Judge
22. The Hon. Mr. Justice L.A. Kyando Puisne Judge
23. The Hon. Mr. Justice W.H. Sekule Puisne Judge
24. The Hon. (Madam) Justice E.N. Munuo Puisne Judge
25. The Hon. Mr. Justice J. Masanche Puisne Judge
26. The Hon. Mr. Justice L.B. Mchome Puisne Judge
27. The Hon. Mr. Justice M.D. Nchalla Puisne Judge

Judges of the High Court of Zanzibar in 1990

1. The Hon. Mr. Justice Hamid M. Hamid Chief Justice
2. The Hon. Mr. Justice Dahoma Puisne Judge

Cases Reported
1990 TLR 1
A
[zRPz]JOHN AGRICOLA v RASHIDI JUMA 1990 TLR 1 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

10 April, 1990
Flynote
Civil Practice and Procedure - Jurisdiction - District magistrate trying in case triable by a resident magistrate in a B Resident Magistrate's Court - District magistrate lacks jurisdiction - Fundamental defect - Incurable.
-Headnote
A case was filed in the Resident Magistrate's court because the District Court had no jurisdiction to hear such C cases. However the case in the Resident Magistrate's Court was heard and tried by a senior District Magistrate. The applicant was successful and respondent appealed to the High Court. In the High Court, Justice Munyera held that there was fatal irregularity apparent on the face of the record of a resident Magistrate as it was tried by a D District Magistrate. Upon an application for leave to appeal to the Court of Appeal on a point of law.
Held: (i) Lack of jurisdiction in the presiding magistrate is a fundamental defect that is not curable at all. A trial by a District Magistrate who lacked jurisdiction in a court he was presiding was a complete nullity; E

(ii) as a result there is no point of law raised by the applicant which is fit for consideration by the Court of Appeal of Tanzania.
Case Information

Application dismissed. F
[zJDz]Judgment
Mwalusanya, J.: This is an application filed by one Mr. Rashidi s/o Juma for leave to appeal to the Tanzania Court of Appeal on a point of law. The applicant was represented by Counsel Mr. Rweyemamu, while the respondent Mr. Agricola s/o John resisted the application in person. G
This matter concerns a case in which the applicant filed an application for vacant possession of premises at the Bukoba Resident Magistrate's Court against the respondent. The case was filed in the R.M.'s Court because the H District Court has no jurisdiction to hear such cases. However the case in the RM's Court was heard and tried by a Senior District Magistrate one Mr. Kajuna. The applicant was successful and respondent appealed to the High Court.
In the High Court Munyera J. was very brief and he held: I
I have no intention of going into the merits of the case as there is
1990 TLR 2
A fatal irregularity apparent on the face of the record of a Resident Magistrate but it was tried by a District Magistrate Mr. Kajuna. Section 6 (1) of the Magistrates' Court Act No. 2/1984 reads Subject to the provisions of s.7, a magistrate's Court shall be duly constituted when held by a single Magistrate being:
B (a) ....
(b) ....
(c) in case of a court of resident magistrate, a resident magistrate.
C While a District Court can be presided over by a resident magistrate, a resident magistrate's court, cannot be presided over by a district magistrate.
I am in complete agreement with the observations of Mr. Justice Munyera. Despite the gallant efforts made by Mr. D Rweyemamu that this was a curable error, however I am of a different view. As clearly pointed out by this court in the case of Giryago s/o Mwita v R. [1978] TLR. n. 89. (Mfalila J.), lack of jurisdiction in the presiding magistrate is a fundamental defect that is not curable at all. The same view was held by the late Mr. Justice Biron in E the case of R v. Pangaras s/o Liprima [1968] H.C.D. n. 178 who held that a trial by a District Magistrate who lacked jurisdiction in a Court he was presiding was a complete nullity. Therefore the argument by Mr. Rweyemamu that the irregularity is curable is untenable.
F That leads me to the conclusion that there is no point of law raised by the applicant which is fit for consideration by the Tanzania Court of Appeal. Therefore this application is dismissed with costs.
Order accordingly.
1990 TLR 2
H
[zRPz]ALEXANDER MPELEMBA v THE REPUBLIC 1990 TLR 2 (HC)

Court High Court of Tanzania - Mbeya
Judge Mchome J

11 April, 1990
Flynote
I Criminal Practice and Procedure - Sentencing - Mitigating factors - Whether having dependants is a mitigating factor in sentencing.
1990 TLR 3
MCHOME J
Criminal Practice and Procedure - Sentencing - Powers of subordinate court to sentence an offender for scheduled A offence - Section 170(1) (a) of the C.P.A. - Whether sentence passed by a Senior Resident Magistrate needs to be confirmed by the High Court. B
-Headnote
The appellant is appealing against a sentence of twelve years imprisonment on the ground that his parents are old and depend on him and that the punishment is more than he could bear.
Held: (i) Section l70(1)(a) of the C.P.A. empowers a subordinate court to sentence an offender for a scheduled C offence to a term of imprisonment not exceeding eight years;
(ii) the scope of the proviso to section 170(2) is limited to section 170(2) and does not apply to the whole of section l70, and in effect it does not give Senior Resident Magistrate unlimited sentencing powers; D
(iii) having dependants is not a mitigating factor in sentencing.
Case Information
Appeal allowed in part. E
[zJDz]Judgment
Mchome, J.: This is an appeal by Alexander Mpelemba against sentence. He was found guilty with two others of robbery with violence and sentenced to twelve years imprisonment each. The appellant's ground of appeal is that his parents are old and depend on him and that the punishment is "more than I can bear". F
Having dependants is not a mitigating factor in sentence since the appellant ought to have thought of the dependants and refrained from committing the offence instead of committing an offence and pleading for lenience because of the dependants. G
But as the learned State Attorney, Miss Mwaiteleke has submitted the sentence imposed is ultra vires the powers of the subordinate court The minimum sentence for robbery in 1987 was seven years imprisonment. The learned Senior Resident Magistrate passed a sentence of twelve years imprisonment apparently due to the big value of the property stolen. H
Under section 170(1) (a) a subordinate court has powers to sentence an offender for a scheduled offence for a term of imprisonment not exceeding eight years. The learned Senior Resident Magistrate perhaps misconstrued the proviso in section 170 (2) which states that:
this section shall not apply in respect of any sentence passed by a Senior Resident Magistrate. I
1990 TLR 4
A My interpretation of this proviso is that it applies only to section 170(2) and not to the whole section 170. It means that a sentence passed by a Senior Resident Magistrate need not be

confirmed by the High Court. But it does not give a Senior Resident Magistrate unlimited sentencing powers. My interpretation is based on the golden B rule of avoiding absurdities.
I therefore allow the appeal against sentence and reduce the sentence to one of eight years imprisonment. By way of revision the sentences against the original third and fourth accused persons, Laitoni Temelayinga Lukosi and C Zavery Chotamasege are also reduced from twelve to eight years imprisonment.
Order accordingly.
1990 TLR 4
D
[zRPz]DASTAN ANTHONY LUAMBANO v REPUBLIC 1990 TLR 4 (HC)

Court Court of Appeal of Tanzania
Judge Makame JJA, Ramadhani JJA and Mfalila JJA

E 11 April, 1990
Flynote
Criminal Law - Murder - Circumstances where the defence of insanity can be invoked.
-Headnote
F The appellant was condemned to suffer death after his conviction for the murder of one, Micaela Mwenda. The deceased was the husband of one Danda whom the accused believed to be the paramour of his wife. According to the evidence available, the appellant deliberately put poison in some flour which the deceased used to cook a meal G for herself and the family. The deceased, her husband and the son ate the meal. The husband and their son survived the dreadful ordeal. After the death of the deceased the appellant wrote to his brother confiding to him how the deceased unhappily got killed when the appellant intended to kill the deceased's husband who had been H sleeping with his wife. At the hearing of the appeal counsel for the appellant argued that the learned trial judge should have invoked the provisions of section 220(1) of the Criminal Procedure Act i.e should have ordered the appellant to be detained at a mental hospital for medical examination.
I Held: (i) Before section 220 (1) of the Criminal Procedure Act can be brought into play there must be some material which could reasonably
1990 TLR p5
MAKAME JJA, RAMADHANI JJA and MFALILA JJA
make it appear to the court that the accused person might have been insane when he committed the offence; A
(ii) there was sufficient evidence to show that the appellant intended to cause the death of the deceased.
Case Information
Appeal dismissed. B
Mwanyika, State Attorney for the Republic

Mcharo, Advocate, for the Appellant.

[zJDz]Judgment

Makame, Ramadhani and Mfalila, JJ.A.: The appellant Dastan Antony Luambano was condemned to suffer C death and he is now appealing from the decision. The High Court sitting at Songea, (Kazimoto, J.), found it established that the appellant, with malice aforethought, killed Micaela Mwenda, the wife of Edward Danda, a person the appellant believed to be his wife's paramour. The allegation was that the appellant deliberately put D poison in some flour which the deceased used to cook a meal for herself and her family. She died as a result of eating that meal. Her husband and her son were also taken ill as a result of partaking of the meal. This was at Namabengo village in Songea District on 31st August, 1986. E

Mr. Mwanyika learned State Attorney, resisted the appeal argued before us by Miss Mcharo, learned Counsel for the appellant.

Miss Mcharo had filed two grounds of appeal - that the trial court should have considered the defence of accidental poisoning, and secondly, that the learned trial judge should have invoked the provisions of section 220 (1) of the F Criminal Procedure Act, 1985; in other words he should have ordered the appellant to be detained at a mental hospital for medical examination.

We were not at all surprised that at the hearing of the appeal Miss Mcharo abandoned the first ground, and we are G able to say at the outset that Miss Mcharo is on very thin ground with regard to the second prong of her attack.

Before section 220(1) can be brought into play it must first appear to the court that the accused person might have been insane at the material time. There must be some material which would make it appear to the court, and H reasonably so if we may add, that the accused person might have been insane when he committed the deed. In the instant case we are of the considered view that there was no material such as would have made the court feel that the accused might have been insane.

There was plenty of evidence, despite the appellant's protestations to the contrary, that the appellant believed that I the deceased's husband,

1990 TLR p6

A Danda, was in the habit of enjoying the appellant's wife's intimate favours. After the deceased had got killed the appellant wrote to a brother of his confiding to him how the deceased unhappily got killed when the appellant had intended to kill the deceased's husband who had been sleeping with the appellant's wife. We see nothing that would B persuade us to agree that the trial court should have ordered the appellant to be medically examined as to his mental health. Miss Mcharo urged that the appellant's act of poisoning food stuff which he knew would be consumed also by other people, and not only by Danda, was irrational. We ask, what murder is ever rational?

C We agree with Mr. Mwanyika that the evidence against the appellant was overwhelming and we accordingly dismiss the appeal.

Appeal dismissed.

1990 TLR 4

D

[zRPz]AMINA MPIMBI v RAMADHANI KIWE 1990 TLR 6 (HC)

Court High Court of Tanzania - Dodoma
Judge Ruhumbika J

E 25 April, 1990
Flynote
Tort - Malicious prosecution - Onus of proving elements of the tort.
-Headnote
F This appeal arises from the decision of the Resident Magistrate's Court of Singida where the appellant brought action against the respondent demanding to be paid Tshs. 50,000/= in damages for malicious prosecution she G claimed was brought against her in the Primary Court of Mtinko. One time there was found a dead sheep in the Shamba of the appellant. Respondent took it that it was the appellant who had slain the sheep. Trial Resident Magistrate decided against the appellant with costs, hence her appeal to the High Court.
H Held: (i) In the circumstances the respondent had reasonable and probable cause to believe that the appellant had wilfully killed the sheep after they strayed into her shamba;
(ii) for the appellant to have succeeded in her action against the respondent, she should have proved in court I below that there was "Malice" on the part of the respondent in that he had prosecuted her in
1990 TLR p7
RUHUMBIKA J
the Primary Court "Without just cause or excuse" or that the respondent had no "reasonable and probable cause" A when he prosecuted her there.
Case Information
Appeal dismissed.
[zJDz]Judgment
Ruhumbika, J.: This appeal by Amina Mpimbi arises from the decision of the Resident Magistrate's Court of B Singida in Civil Case no. 180 of 1987.
The appellant herein brought an action against the respondent Ramadhani Kiwe demanding to be paid a sum of shs. 50,000/= in damages for that malicious prosecuting she claimed was brought against her in the Primary Court of C Mtinko where the court acquitted her.
The trial court considered the evidence laid before it and decided against the appellant whereupon the appellant's claim was dismissed with costs. The trial court reasoned out that the appellant (who was the plaintiff before that court) did not satisfy the said court that she had proved "want of probable cause", "malice" or "bad faith" on the part D of the respondent herein (who was the defendant) when he prosecuted the appellant in the Primary Court of Mtinko.
The background to this appeal is interesting and is as follows: the appellant is married to the respondent's brother E and therefore she is a sister-in-law of the respondent. One time there was found a dead sheep in the shamba of the appellant (here the appellant talks of one such dead

sheep while the respondent talks of two). Following this there were confrontations between the two parties before this court. The respondent banking on what he claims his F children had told him took it that it was the appellant who had slain the sheep as a result of straying into her shamba. The appellant on her part appeared to have disclaimed this.

Eventually, the respondent took up the matter with the police and up to the Primary Court of Mtinko where he G persecuted the appellant (presumably) for wilfully having killed his sheep.

According to the respondent, the appellant was acquitted not because the prosecution was malicious but because his children who had seen the appellant were not allowed to give evidence as they were of tender years. The H magistrate there it would appear did not bother to conduct the voire dire examination of those children. However, as this court was not favoured with the opportunity of perusing the record of the Primary Court of Mtinko, much to be relied upon are the submission of the parties themselves before this court. The appellant on her part supports the fact that one such a child of the respondent could not testify because of the child's tender years. One of these I children (Zena

1990 TLR p8

RUHUMBIKA J

A Ramadhani) gave evidence in the Resident Magistrate's Court at Singida on 19/5/88 and her age is shown to be thirteen years. The trial magistrate affirmed this child as he took stock of the fact that she did understand the nature of the affirmation. Zena told the court that actually the appellant cut the sheep (two sheep) which died in her shamba B and that the appellant injured another two sheep. The witnesses called by the appellant in the Resident Magistrate's Court (including the Ward Secretary) do not seem to have helped her. No one told the court that the dead sheep found in the appellant's shamba had been sent there by the respondent himself as claimed by the C appellant herself. They simply told the court below that they had seen the sheep carcasses in the appellant's shamba and that was all they said.

This court in dealing with Civil Appeal No.16 of 1984 (Dodoma Registry, unreported) and in which the parties were Amina Mpimbi v Tabuy Kilongo, had this to observe quoting the case of Herniman v Smith [1938] D A.C. 305 quoting:

It is not required of any prosecutor that he must have tested every possible relevant fact before he takes action. His duty E is not to ascertain whether there is a defence, but whether there is reasonable and probable cause for prosecution.

In that case the House of Lords approved a definition of reasonable and probable cause, by Hawking, J. in Hick v Faulkner (1881) 8 Q.B.D. 167,171, as:

F an honest belief in the guilt of the accused based on a full conviction, founded upon reasonable grounds, of the existence of a state of circumstances, which, assuming them to be true, would reasonably lead an ordinary prudent and cautious man, placed in the position of the accuser, to the conclusion that the person charged was probably guilty G of the offence imputed.

The respondent in these circumstance had "reasonable and probable cause" to believe that the appellant had wilfully H killed the sheep after straying into her shamba.

As the record of proceedings of the lower court does reveal, an amicable settlement of the matter could not be achieved between the parties and this precipitated the respondent to seek recourse in a court of law resulting in that criminal prosecution brought against the appellant at Mtinko Primary Court.

I For the appellant to have succeeded in her action against the

1990 TLR p9

respondent, she should have proved in the court below that there was "malice" on the part of the respondent in that A he had prosecuted her in the Primary Court "without just cause or excuse" or that the respondent had no "reasonable and probable cause" when he prosecuted her over there.

Ipso facto, this appeal has no merit and is hereby dismissed with costs for the reason contained herein. B

Appeal dismissed.

1990 TLR 1

C

[zRPz]MWALIMU OMARI AND ANOTHER. v OMARI A. BILALI 1990 TLR 9 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Masanche J

15 April, 1990 D

Flynote

Land Law - Land held under deemed Right of Occupancy - Later Right of Occupancy granted to another person - Whether the two rights can co-exist - Whether the granted right extinguishes the deemed right. E

Land Law - Compensation -Improvements on land made while matters are sub-judice in court - Whether compensation payable.

-Headnote

The two appellants Mwalimu Omari and Ahmed Banguo were sued in the Resident Magistrates Court by the F respondent Omari A. Bilali. The subject matter of the suit was a plot No. 60 block "E" situated at Magomeni. Brief facts are that at Magomeni there was an area which at first had not been surveyed. Mwalimu Omari occupied this area whose size the record does not show. Somehow it was decided by some official to survey the area The area G was surveyed and two plots came out of it; plot No. 60 and plot No. 61. Plot No. 61 was given to Mwalimu Omari. It appears that before the plot was surveyed, Mwalimu Omari had given part of the area (now plot 60) to his in-law. This person in turn sold it to the suit defendant Ahmed Banguo. Banguo occupied this unsurveyed land which had nothing but a toilet and some cassava. When the area was demarcated into plots No. 60 and plot No. H 61 Mwalimu Omari got plot No. 61 and the plaintiff was offered plot No. 60. Mwalimu Omari it appears had wished the plot to have been given to Banguo. In the Resident Magistrates Court two issues were framed. (1) who was the

lawful holder of plot No.60 Block E Magomeni Dar es Salaam and (2) what relief were the parties entitled I to. After both sides had given

1990 TLR p10

MASANCHE J

A evidence, the Resident magistrate held that plot no.60 belonged to the plaintiff and there was no compensation for the house built while the case was sub judice, hence this appeal.

B Held: (i) Title under customary law and a granted right of occupancy in an area declared township or minor settlement cannot co-exist. Title to urban land depends on grant;

(ii) squatters in the eyes of the law cannot equate themselves to any person holding a title under right of occupancy even where the squatter occupies land under customary law,

C (iii) once an area is declared an urban planning area and land surveyed and plot demarcated whoever occupies land under customary law has to be quick to apply for right of occupancy. If such person sleeps on such right and the plot is given to another, he becomes a squatter in law and would have to move away; he strictly would not be D entitled to anything;

(iv) the appellants erected the building knowing fully well that the matter was still sub judice and that the respondent had a valid letter of offer from the Ministry of Lands. Since they did so at their own peril no compensation can legally be given to them except for the few cassavas and toilet which existed at the start of the E suit.

Case Information

Appeal dismissed.

Cases referred to:

F 1. Mtoro bin Mwamba v A.G (1953) TLR (R)327

2. Metusela Nyangaswa v Christopher Nyirabu (1985) CA. 14.

[zJDz]Judgment

Masanche, J.: The two appellants Mwalimu Omari and Ahmed Banguo were sued in the Resident Magistrates G Court of Kisutu here in Dar es Salaam by the respondent Omary A. Balali. The subject matter of the suit was a Plot Number 60 Block "E" situated at Magomeni.

Just for purposes of interest a lot of advocates have handled this case. It started with Mr. Ismaili, learned advocate drafting the plaint for the plaintiff, Omari A. Bilali. The defendant engaged Mr. Rahim, learned advocate. The case H got started on 8/9/82 before Mrs. Kimaro RM (as she then was). The case then got adjourned. The whole of 1983 passed; then 1984,1985,1986 and finally on 3/7/87, the case came for continuation of hearing. This time Mr. Mwajasho had taken over from Mr. Rahim. Then on 31/7/87 the case got finalised. Judgment was entered for the I plaintiff with costs. The defendants got aggrieved and appealed to the High Court through Mr. Rahim. But then when the

1990 TLR p11

MASANCHE J

case came up for hearing it is Dr. Lamwai, learned advocate who argued the appeal. There were five grounds of A appeal that had been preferred by Mr. Rahim. Mr. Lamwai decided to adopt the whole memorandum of appeal, but when it came to arguing the actual appeal, Dr. Lamwai, quite rightly to my mind, abandoned ground No.l saying that the record does not support it. He

then proceeded to argue grounds No.2,3 and 4 together. Grounds No.5 B and 6 were argued separately.

Briefly the facts of the case were these, at least from the record.

At Magomeni there was an area which, at first, had not been surveyed. Mwalimu Omari occupied this area. The record does not tell us the size of the plot. But, for sure it was not surveyed. So Mwalimu Omari occupied the C whole of it.

Then, somehow it was decided by whatever official it was to survey this area. So the area got surveyed and two plots came out of it; Plot No. 60 and Plot No. 61. Plot No. 61 was given to Mwalimu Omari. Naturally Mwalimu Omari, had wished to be given the other Plot as well - Plot No. 60. D

If one reads the record well it appears that before the plot got surveyed this Mwalimu Omari gave the area (now Plot 60) to his in-law (name not given in the record). This person in turn sold it to the first defendant Ahmed Banguo. It is not correct therefore, to say that the first defendant Ahmed Banguo was given the piece of land gratis E by the second defendant. Mwalimu Omari himself says this, in his evidence in chief in the Resident Magistrates Court:

Banguo bought the house from one person who is my in-law and now deceased. Plot No. 60 was my plot. I had given F the plot to my in-law. My in-law died and the parents of my in-law sold the plot to the 1st defendant.

Banguo, however occupied this unsurveyed land which had nothing except for a toilet and some little cassava. So, G when the area got, demarcated into two plots, Plot No. 60 and Plot No. 61, Mwalimu got Plot 61 and the plaintiff was offered Plot No. 60. Mwalimu Omari, it appears had wished the plot to have been given to Banguo.

In the Resident Magistrates Court two issues were framed: H

They were:

1. Who is the lawful holder of Plot No. 60 Block E Magomeni Dar es Salaam. I
2. To what relief are to parties entitled to.

1990 TLR p12

MASANCHE J

A After both sides had given evidence (no witnesses were called) the learned resident magistrate held that Plot no. 60 belonged to the plaintiff. She said:

In this case, the plaintiff has proved his ownership over the plot by documentary title, a letter of offer of Right of B Occupancy of the plot. He has also furnished the Court with receipts which confirm(s) that he has paid all necessary charges. The letter of offer clearly shows that the Plaintiff was granted Right of Occupancy from 1/7/78 for 33 years. On C the other hand the defendants have proved unsufrucuary proof of user through the claim that they were given a letter of offer or Right of Occupancy effective from 24/1/80 but they didn't furnish the court with any document to confirm the same.

D Counsel Dr. Lamwai and Mr. Mwajasho made very interesting arguments before me. Dr. Lamwai, for the appellants, for example told this court that DWI, Ahmed Banguo had occupied the area (Plot 60) since 1962, at a time when it was not surveyed. It therefore implies that the said Banguo was a holder on customary law. The E respondent Omari A Bilali came later, in

1978. Even if, right now, this Omari A. Bilali, has been granted offer of right occupancy or even if he had the complete real right of occupancy his title would be inferior to that one of Banguo. Dr. Lamwai then criticised the learned magistrate for relying on the case of Mtoro bin Mwamba v A. G. F (1953) T.L.R. (R) page 327. The learned Magistrate had, relying on that case, held that:

The owner of land in customary land tenure does not have a title on the land. He has only the right to use or in other G words he has unsufrucuary right over the land.

Dr. Lamwai criticised the magistrate for having sought assistance from Mtoro's case. He argued that Mtoro's case is no longer law as that case has been over-ruled by the case of Metusela Nyangaswa v Christopher Nyirabu H (Court of Appeal Civil appeal No. 14 of 1985) in which Mustafa J.A. held (according to Dr. Lamwai) that the right of a holder of right of occupancy by native law and custom is not extinguished and the person does not become a squatter upon the area becoming a planning area Dr. Lamwai went on to argue that since the Land Ordinance I recognises both tenures, there is a possibility of both tenures in a planning area co-existing.

1990 TLR p13

MASANCHE J

Mr. Mwajasho, for the respondent submitted at some length. He supported the learned magistrate in holding that A the appellants were squatters on Plot No. 61 and that, therefore, had no title at all. And, even assuming that they had a title under customary law, that title was inferior to the one the respondents had. Mr. Mwajasho commended the learned magistrate for seeking guidance from the old case of Mtoro Bin Mwamba (Supra) which according to B him was the law. He also submitted that in fact the case of Nyangaswa v Nyirabu quoted by Dr. Lamwai, does not over-rule Mtoro's case.

What Mustafa J.A. said in Nyangaswa's case is that after an area is declared Urban planning area, a squatter or a person holding title under customary law continues to enjoy some rights, e.g. compensation but this was not C superior to that of a holder of right of occupancy. Squatters have a right of facing authorities for fast registration if they comply with set down rules. If they do not do so and someone is granted the plot, they can only be compensated for unexhausted improvement, so Mr. Mwajasho argues. D

I have considered the submissions from both counsel quite seriously. I am afraid, the law is as Mr. Mwajasho, learned Counsel for the respondent says. The interpretation of Nyangaswa's case by Mr. Mwajasho is correct. In that case as I read it, Mustafa J.A. and Omar J.A. who signed the majority judgment, Makame J.A. dissenting E seem to have said that a person holding title under native law and custom but in an area which had been surveyed would have an inferior title to the plot in case another person is granted the same under Land Ordinance. It seems the court there agreed with the interpretation of the law by the learned advocate of the respondent Nyangaswa Mr. F Mkatte. The Court there said:

Mr. Mkatte who appeared for the respondent would seem to contend that the trial Judge did not hold that the right of a holder of a right of occupancy by virtue of native law and custom is extinguished solely because an area has been G declared a planning area. He however seemed

to state that a right of occupancy granted in terms of section 6 of the Land Ordinance Cap. 113 confers a superior and overriding title. H

Mustafa J.A. then went on to state:

At any rate I am not prepared, on the rather inconclusive and tenuous arguments advanced in this appeal, to hold that the right of a holder of a right of occupancy by virtue of native law and I

1990 TLR p14

MASANCHE J

A custom is extinguished and he thereby becomes a "squatter" on an area being declared a planning area.

I understand that passage to mean; which appears to be the most sensible interpretation as Mr. Mwajasho says, B that a squatter, in an area declared a planning area would not be thrown out mercilessly. He would be entitled to something, say, some compensation but that does not mean that the two can co-exist. This view, I would venture to say, finds support in a passage by two learned authors R.W. James and G.M. Fimbo in their treatise Customary C Land Law of Tanzania: A source book, at page 592, where they say this; about squatters:

It is normal for the Government to compensate squatters on town land, when any occupied portion is required. The legal necessity to pay compensation is uncertain, it is arguable that persons occupying town land without any grant are using D such land under customary law, for a right of occupancy "is defined as" a title to the use and occupation of land and includes the title of a native or of a native community lawfully using or occupying land in accordance with native law and E custom (section 2 of Cap 113).

So squatters, in the eyes of the law, I repeat, cannot equate themselves to any person holding a title under right of occupancy even where that squatter is there under customary law. Once an area is declared an urban planning area, F and land is surveyed and given plots, whoever occupied the land even under customary law would normally be informed to be quick in applying for rights of occupancy. If such person sleeps on such a right and the plot is given to another, the squatter, in law, would have to move away and in law, strictly would not be entitled to anything. G However, as the learned authors R.W. James and G.M. Fimbo say, governments have always compensated such going away squatters for their unexhausted improvements. And I agree with these learned authors when they say that these compensations are made (at least after 1967), probably, with in mind the sentiments of Mwalimu H Nyerere in his book Uhuru na Umoja at page 53 - 54 where he says:

Land is a free gift from God to all His living things to be used now and in the future. When I use my energy and talent to I clear a piece of ground for my use it is clear that I am trying to transform this basic gift from God so that it can satisfy a human need.... By

1990 TLR p15

MASANCHE J

clearing that ground I have actually added to its value and have enabled it to be used to satisfy a human need. Whoever A takes then this piece of ground must pay me for adding value to it

through clearing it by my own labour (Mso quoted in Customary Land Law of Tanzania A source book R.W. James and G.M. Fimbo at page 598). B

It is true as Mr. Mwajasho says that the squatters whenever they apply for rights of occupancy over a plot they have an adverse possession and are normally given priority. The two appellants did not do so for plot No. 61. Mwalimu Omari was fast on acquiring title for plot No. 60. Ahmed could have done the same for plot No. 61. C Because he did not do anything, the respondent got an offer first, in 1978. "If Ahmed Bangu got another offer after 1978, on the same Plot (Plot 61) that offer was superfluous".

Here, again, perhaps a passage from Customary Law of Tanzania by the same authors Mr. James and G.M. Fimbo D would have the matter of allocation home.

The authors say, at page 83:

The nature of grant (allocation or allotment) is a common source of litigation in areas where there is land shortage. In E the face of conflicting allegations of allotment and allocation the courts are guided by a number of rules: it is a question of the intention of the land allocating authority; evidence that the grantee was forbidden from fencing the land or planting F permanent trees on the land is an indication that absolute interest was not intended to pass "The courts have on many occasions held that the planting of permanent trees and the act of fencing land, is, customary jurisprudence, acts tantamount to ownership and are inconsistent with rights less than ownership (Jeremiah s/o Antony v Ramadhani Saidi G (1963) L.C.C.A., 63/1962; Mariam bint Chaurembo v Hamisi Waziri (1946) Application to the Governor No. 140, No. 24/1946).

The learned authors go on to say: H

The best evidence of the nature of a grant is of course direct evidence, i.e.; the evidence of the authority responsible for granting the land, or the witnesses thereto. If the grantor is dead, or not available, any document executed when the grant I was made is of

A vital importance. Such evidence is also invaluable when two persons claim to have been allotted the same piece of land.

After Mr. Mwajasho submitted in reply to the submission of Dr. Lamwai, Dr. Lamwai, also submitted. He has B complained that at least the learned magistrate should have compensated the appellant if she held that the plot belonged to the respondent. But then I see that the learned magistrate gave reasons, sound to my mind, why she was not ordering for compensation for the house. She said:

C On the question of building which the defendants erected on the plot, I hold that as the defendants did erect the building with a clear view that the matter was still sub judice in court and that plaintiff had a valid letter of offer from the D Ministry of Lands since 1978, they did so at their own peril. No compensation can legally be given to the defendant....

Of course the defendants could only be compensated for the cassava and the toilet.

E Lastly, there was a reference both in the judgment of the lower court and by Counsel, of Government Circular No. 4 of 1953. That circular would have no direct bearing to the facts of this case. That circular was passed in 1953 to give elaborate procedure of compensation on people in areas other than urban areas. The had been declared township, or municipalities or ninon settlements.

F It also emphasized the preposition that an African who held land under customary law, even if he had no documentary title would be recognised to have had a title. But this did not apply to Urban areas. Title to urban land depends on a grant. So, to answer Dr. Lamwai's question of whether the two titles, title under customary law, and G the rights of occupancy under the land law would co-exist side by side, the answer is that in an area declared to be township or minor settlement, the two cannot co-exist. As I said, title to urban land depends on a grant.

H This appeal is dismissed in is entirety. Costs to follow events.

Appeal dismissed.

1990 TLR p17

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[zRPz]JACKSON s/o MWAKATOKA & 2 OTHERS v REPUBLIC 1990 TLR 17 (CA)

Court Court of Appeal of Tanzania - Mbeya

Judge Kisanga JJA, Ramadhani JJA, and Mnzavas JJA

17 May, 1990

Flynote

Criminal Law- Doctrine of common intention - Death resulting from a fight. B

Evidence- Identification - Repudiated confession - Credibility and demeanour of witnesses - Conflict of evidence.

-Headnote

In a trial for murder caused during a fight at night, the trial judge found the appellants guilty of murder on the C evidence that the first appellant was identified as being present when the second and third appellant attacked the deceased on the fateful night and thus participated in the murder under the doctrine of common intention, that the second appellant was identified as one of the attackers, that the third appellant had confessed to have hit the D deceased on the head with a stone, and that the third appellant's repudiation of the confession required no corroboration for his confession to support his conviction.

The Court of Appeal of Tanzania allowed the first and second appellants' appeal and quashed the third appellant's E conviction for murder and substituted therefore conviction for manslaughter.

Held: (i) There was conflict of evidence as regards the identification of the first and second appellants and that the F identifying witness demeanour and testimony lacked credibility;

(ii) mere presence of the first appellant at the scene of the crime was not sufficient to invoke the doctrine of common intention and implicate him to the murder;

(iii) repudiated confession though as a matter of law may support a conviction, generally requires as a matter of G prudence corroboration as is normally the case where a confession is retracted;

(iv) the third appellant's denial of his confession was an after- thought and thus, on the basis of the evidence untenable;

(v) when death occurs as a result of a fight unless there are very exceptional circumstances, the person who H causes death is guilty of manslaughter and not murder.

Case Information

Order accordingly.

Tunkunjoba, for first and third Appellants I

1990 TLR p18

A Bateyunga, for Second Appellant

Ndunguru, for the respondent

[zJDz]Judgment

Mnzavas, Kisanga and Ramadhani, JJ.A.: The three appellants Jackson Mwakatoka, Briton Mwakalasya and B Anthony Madawa were jointly charged with, and convicted of, the murder of one, Amos Sanga c/s 196 of the Penal Code and sentenced to death by the High Court, (Mtenga, J.)

Dissatisfied with the finding and sentence of the lower Court they have appealed to this Court. Arguing for the first C and third appellants (Jackson Mwakatoka and Anthony Madawa) Mr. Tukunjoba, learned Counsel, attacked the finding of the High court on the ground that the two witnesses, PW. 1 and PW.2, who testified that it was the accused who attacked and killed the deceased, could have been mistaken in their identity of the appellants because D they were standing about 20 paces from where the deceased was being assaulted. It was the learned counsel's submission that there was doubt regarding identification of the appellants as the ones who attacked the deceased on the material night and that this doubt should have been resolved in favour of the appellants.

E As for the doctrine of common intention relied upon by the learned trial Judge in convicting the appellants Mr. Tunkunjoba submitted that the learned judge "did not give a thorough analysis of the evidence". The Court was asked to find the appellants not guilty of the offence of murder and allow the appeal. Mr. Bateyunga, learned F Counsel for the second appellant, Briton Mwakalasya, argued that the two witnesses could not have properly identified the appellant as among the people who attacked the deceased as, it was argued, there was only dim moon light on the material night. It was also submitted that the two eye witnesses were hiding in a jungle of trees and, as such they could not properly see what was happening leave alone identifying the appellants as the people G who attacked the deceased.

The learned Counsel also submitted that although there were electric lights in the neighbourhood the first electric light was 58 paces from the scene of crime, the second electric light was 59 paces away and third was 47 paces H from the scene of crime.

Mr. Bateyunga further argued that the two eye witnesses (PW. 1 and PW.2), could have mistakenly identified the appellants as the people who belaboured the deceased on the material night.

I In support of the convictions Mr. Nduguru, learned State Attorney, argued that the two witnesses properly identified the appellants because there were electric lights. It was also submitted that the two witnesses

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MNZAVAS JJA, KISANGA JJA and RAMADHANI JJA

knew the second and third appellants before the incident and that because of this the question of mistaken identity A of the second and third appellants by the witness was safely discounted by the High Court. Mr. Ndunguru further argued that the third accused confessed to a justice of the peace, (PW.5), that he attacked the deceased with a stone.

As to the doctrine of common intention it was submitted that the evidence of PW. 1. and PW.2 and the fact that the B appellants took to their heels when they saw villagers coming to the scene proved that the accused had formed a common intention to kill the deceased. The learned state Attorney submitted that the appeal has no merit and asked the Court to dismiss it in its entirety. C

In convicting the appellants the learned trial Judge said inter alia:

I observed very carefully these two witnesses i.e. PW.1 and PW.2 and I have come to the conclusion that they are D witnesses of truth. These two witnesses managed to see the three accused very clearly attacking the deceased for on that day it was a moonlight day and also at the scene there was an electric lamp. The three accused attacked the deceased jointly. The three accused therefore fall within the ambit of the principle of common intention as provided E under section 23 of the Penal Code.

Dealing with the extra judicial statement of the third accused the learned trial Judge said inter alia: F

The third accused tries to say that when he gave his statement a Police Officer was present with a gun. I do not believe this story for if it was so then his advocate could have raised this point when Mr. Kajeri, (PW.5), was giving evidence. The G third accused also denied having told the justice of the peace that he hit the deceased with a stone on the head for self-defence. With that I told the two assessors that a denied confession differs from a retracted confession and it does not require to be corroborated. If at all corroboration is required then there is enough of it from the evidence of PW. 1 and PW.2. H

The learned Judge rejected appellants' defence of alibi and convicted the appellant with the offence of murder and imposed the mandatory death sentence.

After having considered and evaluated the evidence and having tested the conclusions of the trial Court drawn from I the demeanour of

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MNZAVAS JJA, KISANGA JJA and RAMADHANI JJA

A the witnesses against the whole of the evidence in this case we are of the view that the learned trial Judge erred in his assessment of the credibility of the two witnesses, PW.1 and

PW.2. The evidence of Emmanuel Ukara, PW. 1, which evidence was accepted by the lower court as credible differed in material particulars from his preview B statement to the Police (exhibit D1).

In his evidence he testified that on 12/8/86 at about 10.30 p.m. the appellants visited his club, attacked him and robbed him of his shs. 1400/=. He testified that having robbed him they left the club and followed the road to Chunya.

C The witness said that after the robbery he went home where he was told that his landlord, the deceased, had followed them at the club after he (the deceased) had been informed by one, Ally about the fracas at the club.

D It was his evidence that he, accompanied by Ally and Richard, PW.2, followed the deceased. At the bus stand they saw the third appellant jumping in jubilation that he had already done his duty. He told the Court that all the appellants were there and that the third appellant was armed with an iron bar and a knife. In cross examination he said he saw the accused attacking the deceased.

E Apparently this witnesses's evidence is diametrically opposed to his statement to the Police on 13/8/86 (exhibit D1), in which he said that when he was attacked by the appellants he raised an alarm and that when the deceased came to his rescue the appellants attacked him with a knife.

F In the same breath the witness again gave a different statement to the Police on 5/l0/86. He told the Police that it was when he was returning home from the club after he had been robbed of his money that he met the second and third appellants. The third appellant is said to have announced that he had finished his job. He says in his statement G that he saw the deceased lying on the ground and that the three appellants were standing near the deceased. He however said he did not see the appellants attacking the deceased.

Like PW. 1, Richard Sanga, (PW.2), also contradicted himself in his evidence. In his examination in chief he H testified that after the fight at the club he proceeded home and told his father, the deceased, what had happened at the club but on being cross-examined by the learned defence Counsel he said that it was one, Ally who reported to the deceased what had happened. In Court he testified that he was standing six paces away from where the third I appellant was attacking the deceased but when cross-examined by the learned defence counsel he admitted having said in his statement to the Police that he was about 20

paces from the scene of crime. He also said he was hiding in the jungle of trees when he saw the third appellant A armed with a knife and an iron bar.

It was incumbent on the trial Judge to have dealt with the conflict of the evidence and as to whether it was sage to convict the appellants on the evidence of PW.1 and PW. 2; this the learned Judge did not do. We are also at a loss B as to why only PW. 1 and PW.2 testified regarding the alleged attack of the deceased by appellants. Given that the incident took place in a populated area, and that many villagers came to the scene, one would have expected other villagers to give evidence regarding the incident. PW. 1 was the deceased's tenant and a business

partner of C PW.2 who is deceased's son. Taking into account this lead to agree with Mr. Bateyunga's argument that PW. 1 and PW.2 had every reason to embellish their stories. It is also not irrelevant to mention that although PW. 1 and PW.2 told the trial Court that there was an electric lamp only 6 paces from the scene of crime when the trial court visited D the scene it was found that one electric lamp was 58 paces from the scene of crime, another one was 59 paces from the scene of crime and the third electric lamp was 47 paces away. These facts tended to discredit the two witnesses all the more.

The Republic argued that although only the first appellant did not assault the deceased he stood passively while the E deceased was being attacked and that he ran away with the second and third appellants when villagers came to the scene. This behaviour, it was argued, made the first appellant guilty of the offence of murder under the doctrine of common intention as defined in section 23 of the Penal Code. The Eastern Africa Court of Appeal dealt with a F similar situation in the case of R. v. Komen where it was held inter alia that:

. . . Mere presence of the accused at a killing, he not having raised any objection thereto is not enough to justify his G conviction for murder.

As for the second appellant his conviction was wholly based on the evidence of PW. 1 and PW.2 whose demeanour impressed the learned trial Judge that they were truthful witnesses. As we have already mentioned H above first and second appellants left much to be desired. Dealing with the question of demeanour of a witness it was held in the case of Byamungu s/o Rusiliba v R. [1951] 18 EACA. 233 that:

An impression as to demeanour of a witness ought not to be I

A adopted without testing it against the whole of the evidence of the witness in question.

Had the learned Judge tested the demeanour of PW. 1 and PW.2 against the whole of their evidence he would no B doubt have found that their testimony was far from being credible.

Coming to the third appellant the evidence against him was on different footing when compared to the evidence against the first and second appellants. There was his extra judicial statement to the justice of the peace (PW.5). In C his statement (exhibit P. l) he assaulted the deceased on the head with a stone but in his defence in Court he repudiated his confession and said that he never told the justice of the peace that he had attacked the deceased with a stone in self defence. He argued that he gave his statements to the justice of the peace in the presence of an armed Police Officer and that D the statement was not read back to him. He however admitted signing the statement.

In dealing with their appellant's repudiated confession the learned Judge said inter alia:

a denied confession differs from a retracted confession as it does not require to be corroborated... the leading authority E for this preposition is the case of R v. Fabiano Kinene and Two Others [1941] 8 EACA 96. If at all corroboration is required then there is enough of it from the evidence of PW. 1 and PW.2 .

F With respect to the learned trial Judge it was a clear misdirection for him to say that a repudiated confession "does not require to be corroborated". That may have been the law in 1941

when the case in R v Fabiano was decided; but the position has since changed. In the case of Tuwamoi v Uganda [1967] EA at page 91 the Court G said inter alia:

.... We would summarize the position thus a trial Court should accept any confession which has been retracted or H repudiated with caution, and must before founding a conviction on such a confession be fully satisfied in all the circumstances of the case that the confession is true...corroboration is not necessary in law and the court may act on a confession alone if it is fully satisfied after considering all the material points and surround circumstances that the I confession cannot but be true.

1990 TLR p23

MNZAVAS JJA, KISANGA JJA and RAMADHANI JJA

This decision was quoted and followed by this very Court in the recent case in Ali Salehe Msutu v R. [1980] TLR A 1 in which the court held that "a repudiated confession, though as a matter of law may support a conviction, generally requires as a matter of prudence corroboration as is normally the case where a confession is retracted".

Apart from the misdirection in law we are however in agreement with the learned Judge when he says in his B judgment....

coming now to the extra judicial statement of the third accused; the third accused tries to say that when he made the statement a Police Officer was present with a gun. I do not believe this story for if it was so then his advocate could have C raised this point when Mr. Kajeri (PW.5) was giving evidence....

On the totality of the evidence we are of the considered view that the third appellant' s confession to the justice of D the peace could not but be true. His denial was clearly an afterthought.

The extra judicial statement shows that there must have been a fight between the deceased and the third appellant who showed to the justice of the peace a scar on his forehead which he alleged was a result of a wound the E deceased had inflicted on him before he (third appellant), attacked the deceased on the head with a stone. When death occurs as a result of a fight as it was in this case, unless there are very exceptional circumstances the person who causes death is guilty of manslaughter and not murder. F

In conclusion we find that due to the paucity of evidence regarding identification of the first and second appellants as shown above the learned trial Judge erred in convicting them with the offence of murder. We allow the appeal in respect of the first and second appellants and we order that they be released from custody forthwith unless they are G otherwise lawfully held in connection with another matter.

As for the third appellant we, for the reasons stated above, find that he is only guilty of the lesser offence of manslaughter c/s 195 of the Penal Code. Consequently we quash his conviction for murder and substitute therefore conviction for manslaughter. H

Taking into account that he has been in custody since August, 1986 we are of the opinion that a sentence of 5 years imprisonment will meet the justice of the case. He is so sentenced.

Order accordingly. I

1990 TLR p19

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[zRPz]JOE R.M. RUGARABAMU v TANZANIA TEA BLENDERS LTD 1990 TLR 24 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Makame JJA, Ramadhani JJA and Mfalila JJA

B 23 May, 1990

Flynote

Civil Practice and Procedure - Pleadings - Failure to file reply to counterclaim within time - Judgment on the counterclaim.

-Headnote

C In a suit for reinstatement of employment, the respondent filed a written statement of defence along with a counterclaim. The appellants failed to respond to the counterclaim within time. Before the suit was heard on merit the respondent applied for judgment to be entered on the counterclaim under Order VIII rule 11 and rule 13 of the D Civil Procedure Code, 1966. The trial judge granted the application and entered judgment on the counterclaim. On appeal against the judgment on the counterclaim.

Held: (i) Failure to file reply to counterclaim within twenty one days contravened order VIII rule 11 of the rules of E Civil Procedure;

(ii) since the reply was filed beyond the time limit of twenty one days and was filed without leave of the High Court as required by order VIII rule 13 of the rules of Civil Procedure, the trial judge acted well within the rules of F Civil Procedure to pronounce judgement on the counterclaim.

Case Information

Appeal dismissed.

Kisusi, for appellant

G Maira, for appellant

[zJDz]Judgment

Makame, Ramadhani and Mfalila, JJ.A.: In the High Court at Dar es Salaam the present appellant, Joe Rugarabamu, filed a suit against Tanzania Tea Blenders Ltd. the present respondent, for reinstatement in his H employment as Chief Accountant. The respondent filed a Written Statement of Defence along with a counterclaim. The appellant failed to respond to the counterclaim and before the suit was heard on merit Mr. Maira, learned advocate for the respondent, successfully applied for judgment to be entered on the counterclaim The I appellant/plaintiff's appeal to this court is against the aforesaid judgment.

1990 TLR p25

MAKAME JJA, RAMADHANI JJA and MFALILA JJA

Up to the time of the High Court judgment the appellant was being represented by Mr. Rwechungura, a A Corporation Secretary for the Tanzania Investment Bank. Mr. Maira

successfully challenged Mr. Rwechungura's legal capacity to represent the appellant in the matter so Mr. Rwechungura accordingly ceased to act for the appellant. B
In this appeal, as in the Court below, the respondent's counsel is Mr. Maira. The appellant's lawyer is now Mr. Kisusi, learned advocate.
The appellant's five point Memorandum centred on his complaint that judgment should not have been entered by the C High Court because there was no proof as to when exactly he received the counterclaim.
We use the High Court record as to dates and the chronology of events in examining the appellant's contention. On the fourth mention date, 30th July 1988, the order was that the Written Statement of Defence should be in by 12th August, 1988. The day following that, 13th August, 1988, by consent the hearing was fixed for 18th October 1988. D We cannot see how the appellant could on the day have agreed to a hearing date being fixed if he had not received the Written Statement of Defence. He must have got it by then and Mr. Rwechungura conceded as much. We therefore do not propose to spend more argument on this aspect of the matter. To plea as does Mr. Kisusi, E that the appellant was after all not warned that there was a counterclaim below the Written Statement of Defence was really to scrape the barrel. We have no basis for assuming that when the appellant agreed to the hearing date he was oblivious to the counterclaim. Mr. Rwechungura rightly made the concession that Mr. Kisusi's valiant effort F to salvage the situation cannot succeed. The rules of Civil Procedure were rightly brought into play. The Reply was filed on 17th October 1988, well beyond the time limit of twenty one days for 13th August 1988. This clearly contravened Order VIII rule 11; no leave of the High Court was obtained in accordance with Rule 13; and so G Mtenga J. acted well within his powers under Rule 14 to pronounce judgment on the counterclaim.
On that basis we are satisfied that the appeal has no merit and accordingly we dismiss it with costs. H
Order accordingly.
1990 TLR p26
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[zRPz]REGISTERED TRUSTEES OF TANZANIA ASSEMBLIES OF GOD v WILLIAM LUSITO AND EMMANUEL LAZARO 1990 TLR 26 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Makame JJA, Kisanga JJA and Omar JJA

B 25 May, 1990
Flynote
Societies Law - Organizations required to register as societies - Applicability of the Societies Ordinance (Application) C Order, 1954 - Meaning of "Congregations exclusively for the purpose of religious teaching and worship".

Civil Practice and Procedure - Trust - Breach of - Written consent from Attorney-General - When necessary - Section 67 D Civil Procedure Code, 1966, section 18 of Trustees Incorporation Ordinance, Cap. 375.

-Headnote

In a suit before the High Court, the appellants had contended that the Tanzania Assemblies of God was incorporated as a trust and that its subsequent registration as a society was improper. The appellants also sought a E permanent injunction against the first respondent not to act as Minister to the Tanzania Assemblies of God. The respondents counterclaimed that the appellants and all Ministers in their group had been lawfully removed from office and should be restrained from conducting prayer meetings in all Tanzania Assemblies of God Churches F without the authority of the authentic leadership of the Tanzania Assemblies of God. The trial judge found that the registration of the Tanzania Assemblies of God as a society was proper in law and was not done in bad faith, and that the appellants had been properly removed from office. The trial judgment was in favour of the respondents. The G Court of Appeal upheld the trial judge's decision.

Held: (i) Tanzania Assemblies of God is one of the organizations required to register as a society. The Minister has the discretion under the Societies Ordinance, cap. 337 to requite such an organization to register as a society.

H (ii) the Tanzania Assemblies of God was not one of the organizations exempted from such registration by paragraph 4 of the Societies Ordinance (Application) Order, 1954 as it was not a "Congregation exclusively for the I purpose of religious teaching and worship".

1990 TLR p27

MAKAME JJA, KISANGA JJA, and OMAR JJA

(iii) the contention that the respondents could not properly counterclaim against the appellants for breach of A crust without first seeking the written consent of the Attorney General lacked basis, because the relevant section 67 of the Civil Procedure Code and Section 18 of the Trustees' Incorporation Ordinance, Cap 375 only apply if the other party is a trustee; B

(iv) since it was properly found that the appellants had been lawfully removed from office, the said requirement of obtaining a written consent of the Attorney General was not applicable.

Case Information

Ballonzi, for appellants C

Lamwai, for respondents

[zJDz]Judgment

Makame, Kisanga and Omar, JJ.A.: The appeal to this court is from the judgment of Chipeta, J. in the High Court at Tabora in a suit involving men of God belonging to a denomination called the Tanzania Assemblies of God D which, for facility of reference, we shall call T.A.G. As the learned trial judge observed this was "an unusual and rare suit."

Evidently there was simmering discontent in the Church and this developed into remarkable acrimony, giving rise to a fractious division, open hated, and at times even physical violence. In at least two instances, at Tabora and at E Temeke, some members of the Church are said to

have sought to make and emphasize their view-points by manhandling the opposite party within the precincts of the house of prayer. Following all this, the parties took each other to court.
The present appellants sued in the High Court and prayed for, among other things, a Declaration that T.A.G. was F incorporated as a trust and therefore its registration as society was improper; and an injunction perpetually to restrain the present first respondent, William Lusito, from acting as minister to T.A.G. church at Kitete in Tabora Region. At the end of the day the present appellants failed in the suit and were condemned in costs. A counterclaim G by the present respondents substantially succeeded. The appellants and all ministers in their group, declared dissident by the trial court, were found to have been lawfully removed from office; they and their followers were restrained from conducting prayer meetings in all T.A.G churches without the authority of what was found to be the H authentic leadership of T.A.G, and they were ordered to vacate with immediate effect all T.A.G. churches and church premises they were found to have unlawfully seized. A prayer for general damages for trespass in the counterclaim was however not allowed, because of the learned trial judges expressed hope that the dissention I would heal and because of the particular nature of the claim.
1990 TLR p28
MAKAME JJA, KISANGA JJA, and OMAR JJA
A We find it necessary to say a few words by way of background. The Assemblies of God is said to have been first introduced into the country in 1927. It was incorporated as a trust in 1963 and had a constitution. This constitution was amended in 1966 and under the amended constitution a bishop called Emmanuel Lazaro continued to be the head of the Church, the superintendent, which he had been since 1963. This man Lazaro is now the B second respondent. His assistant was Moses Kulola, also a bishop. Kulola and Lazaro fell out with each other in 1982 and there has been a split since then.
C At the trial of the suit in the High Court the present appellants were advocated for by Mr. Kwikima, learned counsel, while Mr. Muhula, learned advocate, represented the present respondents. Before us the appellants' advocate was Mr. Ballonzi while the lawyer for the respondents was Dr. Lamwai.
D The appellants are complaining against the trial court's findings that the operative and valid constitution was the 1978 Constitution, which replaced the 1966 one; that the registration of T.A.G. as a society was lawful and in fact obligatory; and that the legally registered trustees are those who existed after the 1981 elections. The learned trial E judge's finding that Pan African Evangelism as an organization did not exist was also complained against.
We wish to say that we found this appeal both involved and intricate and that the various submissions by learned counsel demanded close comprehension and careful analysis. We are grateful to both learned counsel for their well organized efforts to assist us.
F We wish also to refrain from expressing our own views on the mechanics and dynamics of T.A.G such as seem to us to emerge from the record of appeal. We must limit ourselves to observing that the sorry and unusual developments in T.A G. might well be a manifestation of the failure of the expected deep spirituality of devout men G to gain dominance over the human ego and vanity. The structure and history of T.A.G. might have been contributive to the

present situation we have to deal with. It occurs to us that the problem is not quite novel in T.A.G. For example as early as September, 1969 the Mbeya Conference of T.A.G. had occasion to note, albeit in a slightly different context:

H Missionary quarrels - Sometimes a missionary groups sends missionary back to the States. Later that man returns as an independent missionary. It was agreed by the conference that the missionary should notify the Executive I committee and the Presbyters when something like this occurs ...

1990 TLR p29

MAKAME JJA, KISANGA JJA, and OMAR JJA

and further on, under Missionaries visiting Churches - A

because of the things that happened at the Dodoma Conference two years ago, the Mbeya Section decided that missionaries could not visit Churches in their Section without special permission from the Presbyter ... If any missionary B causes trouble or creates a problem, then he will be disciplined according to the Constitution.

One would have expected that men is religious cloaks would spend their spiritual endowments, their time, and their energies, on joyous selfless service to others and that by their devoted display of the major virtues of high thinking, C right living, and loving action, they would illumine the less enlightened mortals and radiate the loving care of Him they profess to follow and serve.

In conducting this appeal we acceded to Mr. Ballonzi's request that he should start by submitting on a certain aspect of respondents' counterclaim. Dr. Lamwai did not object to that course of action. The aspect Mr. Ballonzi wished D to address us on, a preliminary aspect as it were, was whether the respondents had no legal capacity to bring the counterclaim in the first place. He wanted us to say that the respondents should not have counterclaimed at all, so that if we upheld him on this the rest of the appeal would proceed to be argued on the basis that there was no E counterclaim at all. Dr. Lamwai vigorously responded to Mr. Ballonzi's arguments. Immediately after the end of that exercise the court rose so as to consider learned counsel's submissions that far in order to construct its own view. After careful consideration however, and because both counsel understandably went beyond the restricted scope of F that particular exercise, and touched upon issues properly within the province of the rest of the appeal, we decided that counsel should go on and argue the rest of the appeal, on merit. Indeed as it turned out, even after that recess both learned counsel found themselves going back to some of their earlier submissions. That was hardly G surprising, because the various complex parts of the matter are so intertwined. On our part we do not wish to make a severe division, and treat the first portion of the learned arguments as though it is not closed to the rest of the arguments; because it is. H

Mr. Ballozi submitted that while his clients were legally entitled to bring the suit, the respondents had no legal capacity to respond beyond the plaint and bring their own counterclaim The appellants were trustees, Mr. Ballozi submitted, and to remove them one would have to proceed under section 18 of the Trustees' Incorporation I Ordinance cap.375, and seek an opinion of the High Court: Such opinion by the High Court

A would be deemed to have the force of a declaratory decree. Mr. Ballozi also submitted that the respondents were not entitled to counterclaim in the manner they did, in any event, because they did not comply with section 67 of the Civil Procedure Code. He further submitted that under that section, the respondents would first have to B obtain the written consent, of the Attorney General.

Dr. Lamwai's response was briefly that there was need to resort to section 18 of the Trustee's Incorporation Ordinance because, as far as the respondents were concerned, this was on occasion, "when any question arises as C to whether any person is a member of such body corporated..." etc. in terms of the said section 18. Dr. Lamwai submitted that Callist Masulu Dionisi, the man who signed the second Amended plaint, was not a trustee, as is clearly evidenced by Exh. D.1, the document entitled "Notification of A Change of or concerning The Trustees". It D shows that Callist Masalu Dionisi had been dismissed in April, 1982. As for the argument that the respondent did not have the Attorney General's consent, Dr. Lamwai submitted that the section deals with an alleged breach of trust but now because the respondents were not alleging that the appellant persons were trustees, or because in the counterclaim the allegation that the appellant persons were trustees was not conceded, the Attorney General's E consent cannot be a prerequisite.

It seems to us from the foregoing that the rival submission effectively encompass the substantive area of controversy so that central question upon which the outcome of this appeal seem to us to depend.

F In our view the issues are defined by the following questions:

What was at the material time the operative and valid constitution of T.A.G. and what powers if any, did the second respondent, Emmanuel Lazaro, therefore have? Who were really the registered trustees when the plaint was filed? The other questions and possible answers would flow from the foregoing. These would be such issues as whether G Callist Masalu was entitled to resist the transfer to Mwanza and what part the resultant confrontation played? What were the circumstances leading to the registration of T.A.G. as a Society under the Societies Ordinance and whether such registration was illegal and or mala fide? Whether Emmanuel Lazaro had formed an Organization H called Pan-African Evangelism; whether he was entitled to do so if he did, and what was the effect of that organization on T.A. G. and on Lazaro's own position?

It was common ground at the trial that the original constitution registered at the time of the incorporation was replaced by the 1966 Constitution. The appellants' case was that 1966 Constitution was never replaced by any I other one and it is thus the legal and valid one to date.

The relevant and material significance of this contention, if true, would be that Emmanuel Lazaro should not have A continued as the Chief Bishop non stop after two terms, to-date, and

that there was no provision for the transfer of Ministers under the said 1966 Constitution. This would in turn mean that it was irregular to purport to transfer Callist Masalu Dionisi and so he was not obliged to obey the transfer order to go to Bugando. B

We think with respect that the learned trial judge marshalled capable arguments to support his finding that the 1966 Constitution is not the valid constitution of T.A.G. to date. He found on good evidence in our view, that there was a C valid approved constitution the 1978 Constitution a person holding a T.A.G. Office would have to lie fallow for two years after two two-year terms, so how else would Lazaro still be the head, the superintendent, as late as 1988 as asserted by Callist Masalu himself at Page 26 of the typed proceedings? The letter, exh. D.3, which was signed jointly by Emmanuel Lazaro and Moses Kulola, as late as 8th November, 1983, was inviting pastors to a D conference the following month to have another look at the Constitution before going to the General Conference to thrash out the crisis already in existence. The letter directs that the second respondent Emmanuel Lazaro shall in the meantime continue as the Head of T.A.G. with Moses Kulola as his Deputy. This letter of invitation signed by both Lazaro and Kulola as aforesaid, says: E

Katiba Yetu iliyopitishwa na Mkutano Mkuu wa 1978 aliyosimamia Kanisa letu hata sasa mpaka itakapofanyiwa marekebisho. F

Callist Masalu belonged to Moses Kulola's portion of the Church and Exh. D.3 was put in as part of the respondents' case. We think it is significant that Moses Kulola was not called to testify on the appellants behalf. G While we are on this, we wish also to remark that it has not escaped our notice the fact that Moses Mwamenda, one of the people ought to sue the respondents, did not sign the final version of the Amended Plaint and that the only other witness for the appellants, that is other than Masalu himself, was Alexander Simbila who did not get on board until 1982, after he had left the Roman Catholic Church, and who could only talk of the ramifications of the conflict, rather than the root cause which is what would provide answers to the issues the trial court was looking for. H His being a member of Kamati Maalum did not improve his status nor make him more informed as to what was the constitutional position of T.A.G.

If there was no duly approved 1978 Constitution, which was the one registered in 1981, how come Callist Masalu and others under I

A Kulola, were trying to amend the very same Constitution behind the back of the rest of the members of T.A.G., only that the relevant authorities refused to register the amendments because they had not been approved by the recognized General Conference of T.A.G. Masalu does not say that he did not attend the 1978 conference. Lazaro B clearly asserted that Masalu attended that General Conference and that he had in fact participated in preparing for it. We agree with the learned trial judge that in 1978 a Constitution to replace the 1966 one was approved and we agree also that at the 1982 General Conference it was this 1978 constitution which was used. The Lazaro-Kulola C joint letter was much later, in November, 1983, as we have already seen.

The registration of T.A.G as a society was also the subject matter of complaint. It was alleged by the appellants that it was done in bad faith, so as to facilitate Lazaro's scheme to transfer ministers from their stations, for which there D was no provision under the 1966 Constitution. It was also submitted by the appellants' counsel, Mr. Balonzi, that it was irregular, any way, to register T.A.G. under the Societies Ordinance Cap. 375.

The respondents' case was that the transfers were sanctioned by the Executive Committee to which the General E Conference has delegated powers under the 1978 Constitution. We are satisfied that the operative constitution did provide such powers and that Lazaro was only carrying out the Executive Committee's decision. Whether or not the transfers themselves were in bad faith is in our view a different issue, distinct from the contention that the registration F of T.A.G. as a society was itself done in bad faith and irregular. We now wish to turn to this latter contention and we have to start with the relevant law.

Section 2(1) of the Societies Ordinance defines what society is. Section 6 provides that an organization which is not G otherwise a society as defined, because of certain reasons specified under the Act, may nevertheless be required to apply for registration as a society, within the period specified in the order. This means that the requirement is compulsory to the organisation. What is discretionary is the decision to require, and that is by the Minister. The type of organizations which are not societies but which may nonetheless be required to apply for registration are those H organizations which are not societies because they are exempted under specific situations. T.A.G. as an organization was obliged to have itself registered as a society. It appears that Mr. Ballonzi himself otherwise agreed with this but he submitted that T.A.G. is exempted from the obligation by virtue of the Societies Ordinance (Application) Order I 1954 and he relies on Paragraph 4 of the said Order. Paragraph 4 is "Congregations which assemble exclusively for

the purpose of religious teaching and worship." But is T.A.G. really such an organization - A congregation A exclusively for the purpose of religious teaching and worship? Our view is that it is not. In the Concise Oxford Dictionary the nearest 'Congregation' to T.A.G. as an outfit is a lot more than that, even to the knowledge of the appellants. See the Application for Registration - Exh D.7. A group of people not have a church which is B self-supporting self-propagating etc. If all that it does is to assemble exclusively for the purpose of religious teaching and worship.

Mr. Balonzi pointed out that the letter from the Ministry of Home Affairs, Ref. No. SO.6246/29 of 4th August, 1984, that is Exh.p.12 recalled an earlier letter dated 9th February, 1983, (Annxr. J to the Written Statement of C Defence) which said that, among other things, Callist Masalu and certain other named persons were no longer trustees. Even if one was to read Exh. p.12 literally and very strictly, and say that the withdrawal also referred to the compulsory registration, and was not only limited to the leadership crisis the Ministry was handling, the trial judge's D finding was correct that T.A.G was obliged to register as a society in view of our finding that the Societies Ordinance (Application) Order 1954 did not apply. So that even if Chipeta, J. had considered the said order we are satisfied that he would have come to the same

conclusion he did and with this court is in agreement. The E evidence was that the Executive Committee was unsure about the legal position of T.A.G., and that their enquiry because of that is what lead to their discovering that they had to register. We see no evidence from which to agree with the appellants that the step to register T.A.G. as a society was done in bad faith. F

The next big question is who the trustees of T.A.G. at the time the appellant instituted the proceedings were, and, more specifically, whether Callist Masalu was one of the trustees at the material time. We share the learned trial judge's view that "This issue goes to the root of the matter". G

Having not been persuaded by the appellants to fault the High Court finding that the 1978 Constitution was the operative one at the material time and is the valid constitution to date, we have no difficulty in finding, as did the trial court, that Emmanuel Lazaro was the Superintendent the Askosfu Mkuu, of the T.A.G. according to the H Constitution. There is no evidence that he has been lawfully replaced. Callist Masalu became a T.A.G. trustee in 1974 as evidenced by the notification signed by the second respondent himself and by one Glenn Ford. The Notification Form is the Form T.1.4 we heard so much about during the hearing of this appeal. Another T.1.4 Form, signed by the second respondent and another person, dated October, 1984 I

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MAKAME JJA, KISANGA JJA, and OMAR JJA

A was refused registration by the Administrator-General because, the Administrator-General contended, evidence had surfaced that the meeting alleged to have taken place at Dodoma on 11th and 12th October, 1984 at which the new trustees were appointed had not taken place and that in any event an October, 1984 meeting could not have B effected a change of trustee the previous August, that is August 1984. In that Notification, Callist Masalu was mentioned as one of the trustees 'dismissed' but the form shows that his name is cancelled as one of the dismissed trustees and he does not appear in the new list of trustees. So one has to look at other evidence to see whether or C not Masalu had been removed as a trustee. Such evidence is available. The second respondent testified at the trial that after Masalu had refused to obey the transfer to Bugando the General Presbytery called him to a meeting so as to consider the issue but Masalu refused to attend, whereupon the Presbytery decided to remove him from T.A.G. D It was after that dismissal that a Notification of change Exh. D.1 was sent to the Administrator General. The change was said to have taken place on 23rd April, 1982 and signed on 17th January, 1983. Dr. Lamwai was at pains to point out that this Notification was not the one that was rejected, and he was right. The Notification was E sent in after the Iringa conference which got rid of Masalu. We are of the view that the learned trial judge was entitled to arrive at the conclusion that Masalu was not a T.A.G. trustee at the time the proceedings were instituted.

F The arguments on section 10 of the Trustees' Incorporation Ordinance and section 67 of the Civil Procedure Code can be taken together and need be dealt with only briefly. We think Dr. Lamwai's reaction to both arguments has merit. You do not need to seek an opinion when you are satisfied what your position on the matter is and you are not in doubt. The-respondents' stand was that Masalu was not a trustee and they proceeded on that basis. It G would be

inconsistent and self-contradictory to start off by wondering whether Masalu was a trustee. What the respondents did was to respond to Masalu's contention, a pretence as far as they were concerned, and assert that Masalu was not a trustee.

H Regarding the counterclaim Mr. Ballonzi submitted that if at all, the respondents should have proceeded in compliance with section 67 of the Civil Procedure code which required first the written consent of the Attorney General. Mr. Ballonzi's arguments was that what the respondents were counterclaiming was covered under subsections (a), (b) and (c) of section 67. Under the said subsections a party would seek a High Court decree for I one of the following:

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MAKAME JJA, KISANGA JJA, and OMAR JJA

(a) To remove a trustee, A

(b) To appoint a new trustee and

(c) To vest property in a trustee;

When the party alleges a breach of trust created for the purpose of a public charity. B

One has to ask oneself, to get an able answer to Mr. Ballonzi's submissions, whether the respondents were seeking any of the three (a) and (c); and whether the respondents were saying Masalu was in breach of trust. Their position was that Masalu had ceased to be a trustee so he could not be in breach of trust and there was no question of C removing him etc. The trustees were the ones mentioned in the Notification Exh. D. 1. We uphold Dr. Lamwai on this. The respondents were entitled to counterclaim and, on the necessary balance of probabilities, they successfully proved their case in our view.

We shall now consider, very briefly the issue of Pan African Evangelism. We further think it is subsidiary. Subsidiary D in that it did not go to the basic issues.

Some people were unhappy and unconformable about Lazaro's Pan African Evangelism. Certainly one such person was Callist Masalu. The matter was discussed by the relevant authorities in T.A.G. and these were satisfied that Pan E African Evangelism was not an organization as such. "BUT", to use Lazaro's own words, "I was asked to change my ministry to "Bishop Lazaro". This was to avoid confusion among Christians and thus preserve tranquillity within the Church". So that was the advice the Askofu Mkuu got from the collective wisdom as the General Presbytry. It F is noteworthy that we have no evidence that Lazaro continued with the term "Pan African Evangelism" for what he called his Ministry. But the damage might have been done. When you have Askofu Mkuu ending his 'Ministry' bulletins by signing himself as "Ni sisi Pan African Evangelism" one may be tempted to ask the quest who are the G plural 'Sisi'. Why in the name of good reason and sober calculation use Pan African Evangelism letter heads when transacting purely T.A.G. business as Askofu Mkuu, including such things as the transfers of pastors? Pastors could justly have been confused and unsettled by this, just as they could have been by Lazaro's proven and conceded H association with Morris Cerullo whose bulletin billed Emmanuel Lazaro as "a great living example of the teachings Morris Cerullo." Morris Cerullo may be entitled to the view he expresses in his "AFRICA IS IN OUR HANDS" but when he talks of his encounter with the 'Communist Government' and 'Communist Authorities'

in Dar es Salaam in 1974, one need not be very surprised if some members in Lazaro's flock, anxious I
1990 TLR p36
A not to mix religion with politics, felt uncomfortable and perhaps misunderstood their superintended.
We agree with the analysis made and the conclusions reached by the court below and we have no reason to upset the decision. We wish to add that in our view it was quite balanced and judicious not to award to general damages B prayed for.
We dismiss the appeal in its entirety but in the careful exercise of our discretion we order each party to bear his own costs.
We wish to end by expressing our earnest hope that the living faith the parties profess to have will enable them to C forget and forgive, embrace one another again, and take up from where they parted ways, and then seek to improve things from within.
Appeal dismissed.
1990 TLR 36
E
[zRPz]CHIBINZA KULWA v AMOSI KIBUSHI AND OTHERS 1990 TLR 36 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta, J

1 June, 1990
Flynote
F Civil Practice and Procedure - Counterclaim - Court's power to strike-out counterclaim where it would embarrass or delay fair trial of suit - Order 8 Rule 12 Civil Procedure Code.
-Headnote
G After the plaintiff had filed his suit claiming damages for defamation the defendants filed a counterclaim the subject matter of which was property in a deceased estate, a subject of dispute between the parties. When the counterclaim was filed the trial court ordered that the suit be transferred to the High Court on the ground that the H sum claimed in the counterclaim was in excess of the jurisdiction of the Resident Magistrate's Court. In its revisional powers the High Court considered the nature of the counterclaim and the proper procedure to be followed.
I Held: (i) The nature of the counterclaim would clearly prejudice and embarrass the plaintiff and would undoubtedly delay the fair trial of the suit if dealt with in a single case;
1990 TLR 37
CHIPETA J
(ii)in such a case the court is at liberty to order the counterclaim to be struck out or that it should be disposed of A by a separate suit or that it should be tried separately.
Case Information
Order accordingly.

[zJDz]Judgment

Chipeta, J.: In March 1990, the plaintiff, Chibinza Kulwa, filed a suit in Shinyanga Resident Magistrate's Court B against the six defendants claiming damages for defamation. The amount claimed was shs. 200,000.

From the contents of the plaint, there can be no doubt, that the Shinyanga Resident Magistrate's Court had both territorial and pecuniary jurisdiction in the matter. C

A problem arose when the defendants filed their written statement of defence and counterclaim. The counterclaim was for the sum of shs. 317,000/= or 28 cows. The subject matter of the counterclaim was property in a D deceased's estate which is a subject of dispute between the parties.

When the counterclaim was filed, the trial court ordered that the suit be transferred to this Court on the ground that the sum claimed in the counterclaim was in excess of the pecuniary jurisdiction of that court.

It is certainly true that by the provision of Order 8, Rule 9 of the Civil Procedure Code, a defendant may in the E written statement of defence state particulars of the claim made or relief or remedy sought so long as the cause of action accrued to the defendant before the presentation of his written statement of defence.

However, in such a case, the court is at liberty to order the counterclaim to be struck out or that it should be F disposed of by a separate suit or that it should be tried separately. This the court will do if it should be of the opinion that the subject matter of the counterclaim ought to be so dealt with for any reason (see order 8, Rule 12 C.P.C.). One instance in which the court can exercise this discretion is where it is of the view that the counterclaim G would prejudice, embarrass or delay the fair trial of the suit.

In the present case I note that the nature of the alleged defamation is a statement to the effect that the plaintiff is a witch, and murderer. The allegedly defamatory statements were made in March, 1990. The cause of action in the H counterclaim, however is said to have arisen as far back as January, 1987, and the nature of the claim is the property of a deceased's estate.

In my view the counterclaim would clearly prejudice and embarrass the plaintiff and would undoubtedly delay the I fair trial of the suit if dealt with in a single case.

1990 TLR 38

A For these reasons, and in the exercise of the revisional powers of this court, it is hereby ordered that the counterclaim be struck out and the plaintiff's suit be tried by Shinyanga Residents Magistrate's Court. The counterclaim shall be filed as a separate suit in a court of competent jurisdiction.

B Order accordingly.

1990 TLR 38

C

[zRPz]WAMBURA NYANGO v REPUBLIC 1990 TLR 38 (HC)

Court High Court of Tanzania - Mwanza

Judge Mwalusanya, J

D 13 June 1990

Flynote

Criminal Practice and Procedure - Substituted conviction - General rule.

-Headnote

E The appellant who was charged with the offence of cattle theft was convicted of using offensive language. The appellant's conviction for the latter offence was allegedly made under section 300 of the Criminal Procedure Act, No. 9 of 1985.

F On appeal the judge considered the legality of the substituted conviction.

Held: (i) The general rule applicable in substituting convictions is that the verdict sought to be substituted for the existing one must be one involving a minor and cognate offence to the offence charged;

G (ii) while the offence of using abusive language is minor to the offence of cattle theft it is not cognate.

Case Information

Conviction quashed.

H Mbago, for the respondent.

[zJDz]Judgment

Mwalusanya, J.: The appellant Wambura s/o Nyango was charged at Musoma District Court in Mara Region with cattle theft c/s 268 (1) and (3) of the Penal Code Cap. 16. At the end of the trial, the learned trial District I Magistrate substituted a conviction of the offence of using abusive language c/s 89 (1) (a) of the Penal Code Cap 16 for

1990 TLR p39

which the appellant was sentenced to 10 months imprisonment. The appellants' conviction for the latter's offence A was allegedly made under S. 300 of the Criminal Procedure Act No. 9/1985. The appellant is now appealing against conviction and sentence.

The course of action taken by the learned trial District Magistrate was clearly strange and irregular. Very correctly B the appellant has drawn attention to the learned trial magistrate the decision of this court in Nathanael s/o Nkulikiye v R. [1982] T.L.R. 129 by Chua J. and I may point out that there are hundreds of similar cases in our High Court Digests. All these cases stand for the proposition of law to the effect that the general rule applicable in C substituting conviction is that the verdict sought to substitute the existing one, must be one involving a minor and cognate offence to the offence charged. It is crystal clear that the offence of using abusive language is minor to the offence of cattle theft but it is not cognate. So the substituted conviction was obviously bad in law. The State Attorney Mr. Mbago was of the same view and did not support the conviction. D

In the event the appeal succeeds. The appeal is allowed, the conviction is quashed and the sentence is set aside. The appellant should be released forthwith unless held for any other offence. E

Appeal allowed.

1990 TLR p39
F
[zRPz]CHARLES SAMSON v REPUBLIC 1990 TLR 39 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Nyalali CJ, Makame JJA and Ramadhani JJA

16 June 1990 G
Flynote
Criminal Practice and Procedure - Alibi - Defence of - Failure of court to take cognizance of - Failure of court to direct assessors on the defence - Effect.
Criminal Practice and Procedure - Alibi - Defence of - Failure of accused to disclose defence before prosecution closes H its case - Effect.
-Headnote
Before the High Court at Mwanza was Charles Samson, the Appellant, charged with the offence of murder, c/s 196 I of the Penal Code, Cap 16. The learned trial judge convicted him and sentenced him to suffer death
1990 TLR p40
NYALALI CJ, MAKAME JJA and RAMADHANI JJA
A by hanging. In the trial court the appellant raised the defence of alibi to which the trial judge made no reference when summing up the case to the assessors.
Aggrieved by the conviction and sentence, the appellant filed an appeal raising, among other grounds, the trial B judge's failure to address the assessors and himself on the appellant's defence of alibi.
Held: (i) The court is not exempt from the requirement to take into account the defence of alibi, where such defence has not been disclosed by an accused person before the prosecution closes its case;
C (ii) where such disclosure is not made, the court, though taking cognizance of such defence, may in its discretion accord no weight of any kind to the defence;
(iii) in the present case, the court took no cognizance whatsoever of the alibi, both in the summing up to the assessors and in the judgment thus occasioning a mistrial and a consequential miscarriage of justice.
Case Information
D Appeal allowed.
Rugarabamu, for the appellant
E Malamsha, for the respondent
[zJDz]Judgment
Nyalali, C.J., Makame and Ramadhani, JJ.A.: The appellant Charles Samson was charged and convicted in the High Court at Mwanza for the offence of murder c/s 196 of the Penal Code and was sentenced to suffer death F by hanging. He was aggrieved by the conviction and sentence

hence this appeal to this court. Before us he was represented by Mr. Rugarabamu, learned advocate, who filed a memorandum of appeal containing two grounds of G appeal. Mr. Malamsha, learned State Attorney appeared for the respondent/ Republic.

From the proceedings in this court and the court below the following matters are not in dispute between the parties. During the night of Saturday 3rd October, 1987 the dwelling house of one Charles Tinga in Magu Town, Magu H District, was invaded by a group of bandits, who broke into his room, shot him dead and demanded and were given money amounting to shs. 106,000/= by the wife of the deceased, that is Elizabeth Magushi, (PW.1). Thereafter the bandits went away. PW.1 raised an alarm in response to which a group of people, including the police, came to the I scene. It is common ground that there was bright moonlight at the material time. Subsequently the appellant was arrested the following day in the evening. It is common ground also that on the

7th day of October 1987 the appellant was identified by PW. 1 and her son, that is Japhet Tinga (PW.2) at an A identification parade mounted by the police.

It is apparent from the proceedings both in this court and the court below that the following matters of fact are in dispute between the parties. It is the prosecution case that the appellant was one of the bandits and was in fact the B person who shot dead the deceased. On the other hand the defence case consists of a general denial and an alibi to the effect that at the material time the appellant was at home playing cards with his family and a neighbour until he went to sleep at about 11.30 p.m.

In his memorandum of appeal the appellant raises one important point which, if sustainable, makes it unnecessary C for us to consider his other grounds of appeal. The ground reads as follows:

The learned trial judge failed to address the assessors and direct himself on the appellant's defence of an alibi and D under circumstances erroneously convicted the appellant.

It is apparent from the brief summing up and the judgment of the learned trial judge that no reference is made to the appellant defence of alibi. Mr. Malamsha concedes as much. He however submits that the failure to direct the E assessors on this defence of alibi and the omission by the trial judge to consider this defence in his judgment, is not fatal to the trial because, the appellant, on his part failed to comply with the provisions of section 194 subsections (4), (5) and (6) of the Criminal Procedure Act 1985. These provisions require an accused person seeking to rely on F an alibi, to disclose it before he is called upon to defend himself. With due respect to Mr. Malamsha, we are unable to agree with his submission. The provisions of subsections (4), (5) and (6) of section 194 state as follows:

(4) Where an accused person intends to rely upon an alibi in his defence, he shall give to the court and the prosecution G notice of his intention to rely on such defence before the hearing of the case.

(5) Where an accused person does not give notice of his intention to rely on the defence of alibi before the hearing of the H case, he shall furnish the prosecution with the particulars of alibi at any time before the case for prosecution is closed.

(6) If the accused raises the defence of alibi without having first furnished the particulars of the alibi to the court or the I prosecution in pursuant to this section, the court at its own discretion, may accord no weight of any kind to the defence.

1990 TLR p42

A It is obvious, on a proper construction of the provisions of this section, that the court is not exempt from the requirement to take into account the defence of an alibi, where such defence has not been disclosed by an accused person before the prosecution closes its case. What this section means is that where such disclosure is not made, B the court, though talking cognizance of such defence, "May in its discretion, accord no weight of any kind to the defence".

In the present case the court appears to have taken no cognizance whatsoever of the alibi, both in the summing up C to the assessors and in the judgment. There was thus a mistrial and a consequential miscarriage of justice. We are bound therefore to allow the appeal by declaring the trial a nullity, quashing the proceedings and directing that a new trial of the appellant be undertaken either before the same or another judge.

D Appeal allowed.

1990 TLR p42

E

[zRPz]ABDALLAH BAZAMIYE AND OTHERS v REPUBLIC 1990 TLR 42 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Nyalali CJ, Makame JJA and Ramadhani JJA

16 June 1990

Flynote

F Criminal Practice and Procedure - Assessors not given opportunity to put questions to witnesses - Whether trial with the aid of assessors - Effect - Section 265 of the Criminal Procedure Act, 1985.

-Headnote

G The appellant Abdallah Bazamiye and five others, namely Juma Machupa, Hamisi Obadia, Mangapi Sajini and Said and Samson Ntilikungwa were convicted of murder and consequently sentenced to death for assaulting to death one Enock Hinyonza Masharubu allegedly, a train robber.

H It was apparent on the trial judge's record that the gentlemen assessors were not given the opportunity to put questions to witnesses although the learned trial judge agreed with the assessors' opinion.

I Held: (i) Denying the assessors the opportunity to put questions means that the assessors were excluded from fully participating in the trials;

(ii) to the extent that they were denied their statutory right, they were disabled from effectively aiding the trial A judge who could only benefit fully as he would have if he had taken into judicious account all the views of his assessors;

(iii) assessors' full involvement in the trial is an essential part of the process, its omission is fatal, and renders the trial a nullity. B

Case Information

Proceedings quashed.

Rugarabamu, for the appellant

Mtaki, for the respondent C

[zJDz]Judgment

Nyalali, C.J., Makame and Ramadhani, JJ.A.: The deceased in the case giving rise to this appeal, Enock Hinyonza Masharubu, was alleged to be a train robber and the contention by the Republic was that he was assaulted to death by the appellants who intended that he should die or suffer grievous harm. During the same D session of assault, the Republic contended, a prosecution witness and an alleged companion of the deceased, a man by the named of Fidelo Mgudo, had both his ears chopped off with a knife by one of the appellants. Both gentlemen assessors who sat with the learned trail judge opined that all the appellants were guilty of murder. The E learned trial judge (Korosso, J.) agreed with the assessors, convicted the appellants for murder, and accordingly condemned them to death. They have appealed to us against that decision and their advocate for the purpose was Mr. Rugarabamu, learned counsel. Mr. Mtaki, learned Senior State Attorney represented the respondent Republic. F

Mr. Rugarabamu came armed with four grounds of appeal seeking to demolish the trial court's decision but before he could make use of his forensic arsenal we drew his attention to a possible issue he might wish to address us on, and it was this: Whether, if the assessors were not given the opportunity to put questions to the witnesses, the trial G could be said to have been with the aid of assessors, and what the effect would be, in law, if the said trial was not with the aid of assessors. We had to stand down the appeal for a brief while so as to give time to counsel to organize himself and prepare his response. H

On resumption Mr. Rugarabamu submitted that because under section 265 of the Criminal Procedure Act all trials before the High Court shall be with the aid of assessors, where such a trial is not with the aid of assessors it is a nullity. He also drew our attention to section 177 of the Evidence Act under which: I

A In cases tried with assessors the assessor may put any questions to the witness, through or by leave of the judge, which the judge himself might put and which he considers proper.

B Mr. Rugarabamu also submitted that it is discernible from the record of trial that the assessors were not invited to put questions to witnesses for, had they been, and they merely declined to accept the invitation because they did not have any questions to ask, or if they had

indicated to the trial judge that they wished to put particular questions all of C which the trial judge did not consider proper, the record would have said something like that the questions were 'NIL'. Learned counsel also addressed us on section 290 of the Criminal Procedure Act which provides:

D The witnesses called for the Prosecution shall be subject to cross-examination by the accused person or his advocate, and to re-examination by the advocate for the prosecution.

E If we correctly understood Mr. Rugarabamu, as we reckon we did, he wondered why assessors were not referred to in section 290 like they were mentioned in section 265. Now section 290 deals with witnesses for the case for the Prosecution. We note that it has its counterpart-section 294, when one comes to the case for the F Defence. We do not, however, propose to detain ourselves too long with considering any of the above two sections because, for our present discussion, they are completely irrelevant. They deal with cross-examination and re-examination of witnesses and the accused, none of which is the function of assessors. It is not the duty of G assessors to cross-examine or re-examine witnesses or the accused. The assessors' duty is to aid the trial judge in accordance with section 265, and to do this they may put their questions as provided for under section 177 of the H Evidence Act, 1967. Then they have to express their non-binding opinions under section 298 of the Criminal Procedure Act, 1985. We might mention here that, in practice, when they put their questions under section 177 of the Evidence Act 1967 other than through the judge, they do so directly, the leave of the judge being implicit in the judge not stopping them from putting their questions. That is, the discretion remains with the judge to prevent the asking of questions which are, for example patently irrelevant, biased, perverse, or otherwise improper.

I Mr. Mtaki, learned Senior State Attorney, did not seek to challenge Mr. Rugarabamu's submission that the trial judge's failure to comply

with section 265 of the Criminal Procedure Act 1985 made the trial not with the aid of assessors and so rendered A it a nullity. Very briefly, denying the assessors the opportunity to put questions, as we are satisfied was the case in the proceedings below, means that the assessors were excluded from fully participating in the trials; so to the extent that they were so excluded, and denied their statutory right, they were disabled from effectively aiding the trial judge B who could only benefit fully if he took into judicious account all the views of his assessors and those would only emerge from their own appreciation of the case as a whole. Such appreciation would have been influenced and shaped partly by the assessors' sheer need to articulate their own questions which cross their minds as they go C along, and by their own perception of the factual issues involved, as assisted by the assessors' exchanges with the witnesses and the accused. We think that the assessors' full involvement as explained above is an essential part of the process, that its omission is fatal, and renders the trial a nullity. We wish to add another thought to this D exposition: For our purpose in the Court of Appeal, the informed and full views of the assessors become further necessary when we have to rely on what we might call the Segesela principle, that is in the event of the trial judge disagreeing with the unanimous views of

his assessors we shall want to determine whether he was entitled to do so. E In order to enable us to make that determination meaningfully we must know the judge's reasons for so disagreeing, and to appreciate those reasons we would have to gauge them against the full and informed views of the assessors which they can only express satisfactorily if the trial was with their aid as explained. This need for a F judge to give his reasons for disagreeing with the unanimous views of his assessors was enunciated in Charles Segesela v R., E.A.C.A criminal appeal no. 13 of 1973, from a case tried in Tanzania, and we wish to express our approval of it. G For reasons we have endeavoured to explain the High Court proceedings in the case giving rise to this appeal are a nullity. We accordingly quash them and order a retrial of the appellants.
Proceedings quashed. H
1990 TLR p46
A
[zRPz]MUKAMI W/O WANKYO v REPUBLIC 1990 TLR 46 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Nyalali CJ, Makame and Ramadhani, JJA

20 June 1990
Flynote
B Evidence - Confessions - Contradictions in some parts of confessions - Central story nothing but the truth - Whether may ground conviction.
-Headnote
C The appellant was charged with and convicted of the murder of her husband by administering poison. The conviction was grounded on the appellants two confessions which had apparent contradictions between certain parts. The appellate court considered the effect of these contradictions.
D Held: (i) We have considered these contradictions but we are satisfied that they do not affect the central story of the confession which concerns the administration of the poison to the deceased through tea prepared by the appellant for the deceased;

E (ii) if the contradictions are severed from the central story the confessions contain nothing but the truth and can safely be relied upon to convict the appellant in keeping with the rule stated in the case of Tuwamoi v Uganda [1967] E.A. p. 84.
Case Information
F Appeal dismissed.
Butambala, for the appellant
Malamsha, for the respondent
[zJDz]Judgment
G Nyalali, C.J., Makame and Ramadhani, JJ.A.: The appellant Mukami Wankyo was charged in the High Court on circuit at Musoma with the offence of murder c/s 196 of the Penal Code, was

convicted as charged and sentenced to suffer death by hanging. She was aggrieved by the conviction and sentence hence this appeal to this H court. Before us the Republic was represented by Mr. Malamsha, learned State Attorney. Mr. Butambala learned advocate, representing the appellant filed a memorandum of appeal containing one ground of appeal stating:

That the case against the appellant was not proved beyond reasonable doubt as the evidence relief upon by the trial I judge to convict the appellant was not watertight.

1990 TLR p47

NYALALI CJ, MAKAME JJA and RAMADHANI JJA

From the proceedings both in this court and the court below, the following matters of fact are not in dispute A between the parties. It is common ground that at the material time the appellant was one of the many wives of one Wankyo s/o Mkirya. On or about 11th July, 1986 the said Wankyo s/o Mkirya died inside the house of the appellant in Magunga Village, Musoma district. Subsequently the appellant was apprehended and taken to B Buhemba Police Station, where she made a statement to a police officer, that is, no. C 193 D/Cpl. Joseph (PW.1) in which she confessed to poisoning her husband by putting poison in the tea which she prepared for him that day, apparently because of his persistent cruelty towards her. Thereafter the appellant was taken to a Resident C Magistrate, that is, Mrs. C.K. Kalombola (PW.2) to who she made a similar confession. Furthermore, it is undisputed that on the 14th July 1986 a postmortem examination on the body of the deceased was performed by a doctor, who came to the conclusion that the death of the deceased was due to poison. This doctor took some D internal organs which he sent to the Government Chemist for further expert chemical analysis and report. It is undisputed that the Chief Government Chemist's report, made in consequence thereof, shows that the pieces of liver and kidney, as well as the intestinal excreta taken from the deceased, contained some alkaloids and organ sulphur, E which are known to be fatal to human beings, when taken in large quantities.

From the same proceedings in this court and the court below, the following matters of fact appear to be in dispute between the parties. It is the prosecution's case that the appellant voluntarily confessed to PW. 1 and PW.2 to the F effect that she had put poison in the tea which she had prepared for her husband on the material day in order to kill him and thereby end her ordeal of cruelty perpetrated to her by her husband. On the other hand, the case for the defence consists of a general denial of the prosecution case and an assertion that the deceased began feeling unwell when he returned to the appellant's house from a visit to the house of one of his sons by another wife. It is part of G the defence case that after the death of the deceased, the appellant was beaten up, initially by the sons of the deceased, and later by the police at Buhemba Police Station . It is part of the defence case that as a result of these beatings by the police, she confessed to PW.1 and PW.2. H

The first important issue for consideration and decision in this case is whether the confessions made by the appellant to PW. 1 and PW.2 were voluntary. The trial court came to an affirmative answer after a trial within a trial was conducted in respect of each of the confessions. We concur

with the conclusion of the learned trial judge on this I point. In her evidence in chief given during the trails within the trial, the appellant

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NYALALI CJ, MAKAME JJA and RAMADHANI JJA

A asserted that she was beaten up by PW.1 and another son of the deceased, that is, Mr. Sukuti, to induce her to confess. We note however that when PW. 1 gave evidence in one of the trials within the trial, no suggestion to the effect was put to him under cross-examination by the defence. We think it is unlikely that PW. 1 would not have B been cross-examined by the defence specifically on the point, if really he and Mr. Sukuti were involved in beating up the appellant. Furthermore, if the appellant had really been beaten up by the police at Buhemba to induce her to confess, she would have mentioned that fact to the Resident Magistrate, that is PW.2, when confessing to her in the C Magistrate's court chambers. The suggestion made to PW.2 under cross-examination to the effect that a confession, was denied by PW.2 appears to be candid. This is illustrated by her record of what she saw when she examined the body of the appellant. She records to have seen bruises on the leg and fingers of the appellant. These D bruises were however old.

The second issue for consideration and decision in this case is whether the appellant poisoned the deceased. The three wise assessors and the learned trial judge accepted the two confessions as true, and came to an affirmative E conclusion on the issue. In coming to this conclusion, the trial court however did not specifically consider the apparent contradictions between certain parts of the two confessions. Such contradictions concern inter alia, the source of the poison, and her normal residence prior to this incident. In her statement to PW. 1 she claims to have F been living in separation from the deceased for twelve years in Kenya, and claims to have brought the poison with her from Kenya. However in her statement to PW.2, the appellant seems to suggest that she lived with her husband and obtained the poison from a witch doctor in Tarime.

G We have considered these contradictions but we are satisfied that they do not affect the central story of the confession, which concerns the administration of the poison to the deceased through tea prepared by the appellant for the deceased. These contradictions can therefore be severed from the central story within the scope stated in the case of Siduwa Were v Uganda, [1964] E.A. p.596. Moreover, the central story is confirmed by the findings of H the Chief Government Chemist concerning the remains of the internal organs taken from the body of the deceased. Thus fortified we are satisfied that the remaining central story in the confession contain nothing but the I truth, and can safely be relied upon to convict the appellant in keeping with the rule stated in the

1990 TLR p49

case of Tuwamoi v Uganda [1967] E.A. p. 84. Having come to that conclusion, it follows that the appeal must fail A in its entirety.

In the final analysis therefore we dismiss this appeal in its entirety.

Appeal dismissed. B

1990 TLR p49

C

[zRPz]MORANDI RUTAKYAMIRWA v PETRO JOSEPH 1990 TLR 49 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Nyalali CJ, Makame JJA and Ramadhani JJA

22 June 1990

Flynote

Law of Limitation - Customary limitation rules - Court's discretion to extend time to file suit. D
Evidence - Additional evidence during appeal proceedings - Submissions made by a party to an appeal in support of grounds of appeal are not evidence - A memorandum of appeal is not evidence. E

-Headnote

In a suit for recovery of land, the trial Primary Court found that the appellant had not bought the land from the respondent. On appeal, the District Court reversed the decision of the trial Primary Court and entered judgment for F the appellant on the findings that the appellant was time barred by the Customary Law (Limitation of Proceedings) Rules, 1963 from recovering possession thereof. On further appeal to the High Court, the appellant judge found that it was wrong for the District Court to act on matters which were not raised or dealt with in the trial Primary Court, that is, the additional evidence purportedly taken by the District Court and the matter of limitation, G and accordingly reversed the decision of the District Court and restored the decision of the Primary Court. On further appeal to the Court of Appeal.

Held: (i) The trial Primary Court had discretion to admit the suit after the prescribed limitation period and had H sufficient cause to use its discretion;

(ii) the District Court was wrong to reverse the trial court's decision because the purported additional evidence supporting the reversal was no evidence in law. The submissions made by the appellant in the course I

A of the appeal arguing that the appellant had bought the land are not evidence but arguments on the facts and the law raised before the court. There being no evidence on the fact of sale of the land, the District Court had no basis for its finding;

(iii) the finding of the District Court that the appellant had been in occupation of the land in dispute for a period B of 15 years and hence the respondent was time barred to recover possession was based solely on the information contained in the Memorandum of Appeal, by the appellant to the court and in submissions made by the appellant in support of his grounds of appeal. Memorandum of Appeal, like submissions, is not evidence but is purely a C statement of the grounds upon which the appeal is based.

Case Information

Appeal dismissed.

D Rutakyamirwa (guardian ad liten), for the appellant
Rweyemamu, for the respondent
[zJDz]Judgment
Nyalali, C.J., Makame and Ramadhani, JJ.A.: The Respondent Petro Joseph instituted a suit in the Primary E Court at Katerero in Bukoba District on the 21st September 1983 against two persons, that is, Wilbrod Joseph, who was the First Defendant, and the appellant, that is, Morandi Rutakyamirwa, who was the Second Defendant, for recovery of possession of a piece of land situated in Rwagati locality in Bukoba District. As the First Defendant F could not be traced, the suit proceeded against the appellant, and was successful. The appellant was aggrieved by that decision and he appealed to the District Court at Bukoba. That court overturned the decision of the trial Primary Court and gave judgment for the appellant. Predictably in cases of this nature from Bukoba District, the G respondent in turn appealed to the High Court at Mwanza. That court, Munyera J., overturned the decision of the District Court and restored the decision of the trial Primary Court. The appellant was also aggrieved by the decision of High Court, and he sought to appeal to this court by asking the High Court to certify a point or points of law H involved in the intended appeal in terms of section 5 (2)(c) of the Appellate Jurisdiction Act 1979.
The High Court, Moshi, J., certified as prayed, hence this appeal. Mr. F. Rutakyamirwa appeared before us for the appellant as a guardian appointed by a judge of this court, whereas Mr. J.S. Rweyemamu, learned advocate, I appeared for the respondent. The
1990 TLR p51
NYALALI CJ, MAKAME JJA and RAMADHANI JJA
Memorandum of appeal filed in this appeal contains three grounds as follows: A

1. The learned judged erred in law by disregarding the explicit provisions of the law relating to the limitation of actions and in not holding that the action by the respondent was time-barred. B

2. The learned judged erred in law by not holding that the learned District Magistrate was justified in law in taking additional evidence. C

3. The learned judged erred in law in not taking into account the additional evidence taken by the District Court.

From the proceedings in the three courts below the following matters of fact appear to have been established. The D appellant was at the time material to this case in occupation of the land in question by the appellant, one Wilbrod Joseph, that is the First Defendant, who is a brother of the respondent, occupied it. The respondent and the said Wilbrod Joseph are sons of the late Joseph Mjunangoma, and are members of the Abainda clan. The appellant is not a member of that clan, to which the land in dispute belongs, but is a member of the Mjubu Clan and a blood E brother of the late Joseph Mjunangoma. Furthermore it was established by the courts below that while the said Wilbrod Joseph was in occupation of the land in dispute, he mortgaged the land to raise some money on four different occasions, and that the appellant advanced some money to him to enable him to redeem it. Thereafter on F the last occasion, the appellant entered into occupation of the land, and the said Wilbrod Joseph vacated it and went away. He

has never been seen or heard of ever since. It was established in the trial Primary Court that the appellant did not buy the land in dispute from the said Wilbrod Joseph but merely assisted the latter to redeem it. G The District Court however, after purportedly taking additional evidence on appeal, concluded that the said Wilbrod Joseph sold the land in question to the appellant on the last occasion and that the transaction was recorded in a document. This conclusion was one of the basis which led the District Court to overturn the decision of the trial H Primary Court.
The other basis which led the District Court to overturn the decision of the trial Primary Court, concerns the Law of Limitation. The District Court found that the appellant had been in occupation of the land in dispute for the period of 15 years, and therefore held that the suit for recovery of possession of the land was time-barred by virtue of the I

A provisions of rule 2 and paragraph (6) of the Schedule to The Customary Law (Limitation of Proceedings) Rules, 1963 - Government Notice No. 311 published on 29th May 1964 - which provides for a limitation period of 12 years.

B As already mentioned, subsequently the High Court overturned the decision of the District Court and restored that of the trial Primary Court. The High Court, Munyera J., was of the view that the District Court was wrong in acting on matters which were not raised or dealt with in the trial Primary Court, that is, the additional evidence purportedly taken by the District Court, and the matter of Limitation.

C It is apparent from the record of proceedings that the basis of the finding by the District Court that the appellant had bought the land in dispute from the said Wilbrod Joseph was solely the submissions made by the appellant in the course of the appeal in the District Court. Mr. Rweyemamu, learned advocate for the respondent, contends to D the effect that such submission are not and cannot be treated as evidence. Mr. Rutakyamirwa concedes the point. We, on our part, concur and find that submissions made by a party to an appeal in support of grounds of appeal, are not evidence but are arguments on the fact and the law raised before the court. Such submissions are made E without oath or affirmation, and the party making them is not subject to cross-examination by his opponent. Since, apart from these submissions, there was nothing else by way of evidence upon which the District Court could have properly found that the appellant had bought the land in question, it follows that the finding of the trial Primary Court F that there was no sale of the land in question, cannot be faulted.

We now come to the issue of Limitation. The finding of the District Court that the appellant had been in occupation of the land in dispute for a period of 15 years was based solely on the information contained in the submissions G made by the appellant in support of his grounds of appeal. Since, as already stated, submissions are not evidence, it follows that they have to be disregarded on this point. Mr. Rweyemamu, learned advocate, also contends to the effect that the Memorandum of Appeal is similarly not evidence. Mr. Rutakyamirwa concedes. We, on our part, H concur and find that a memorandum of appeal is not evidence but is purely a statement of the grounds upon which the appeal is based. It follows therefore that there was no evidence whatsoever to support the finding of 15 years' occupation of the land by the appellant.

I The only material which can be used to determine the period of occupation of the land by the appellant is to be found in the pleadings.

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NYALALI CJ, MAKAME JJA and RAMADHANI JJA

In his statement of claim in the Primary Court, the respondent admitted that by the 20th January 1971, the land was A already sold to the appellant, and attempts were made to redeem it. It thus seems that the appellant had been in occupation of the land in dispute for a period of 12 years and some 8 months by the time the suit was instituted in the Primary Court. Does this mean that the respondent is time-barred in redeeming the clan land? Undoubtedly the B period of limitation is 12 years as stated by this court in the case of Elizeus Retakubwa v Jason Angelo (Civ. App. No.21 of 1987 - not yet reported). But there is an exception provided under Rule 3 sub-rule (4) of The Customary Law (Limitation of Proceedings) Rules 1963, which states: C

The court may in its discretion admit any proceedings after the expiration of the period of Limitation, if it is satisfied that the person bringing such proceedings was unable for sufficient cause to bring the proceedings earlier. D

Mr. Rweyemamu has submitted to us that the delay of 8 months or so in instituting this suit after the expiration of the period of 12 years, has been due to the conduct of the appellant who has been prevaricating by suggesting to the E respondent that he was willing to settle amicably out of court as soon as the said Wilbrod Joseph turned up. It is apparent from the appellant's evidence adduced in the trial Primary Court that he has continued to protest his willingness to hand back the land amicably, even without payment as soon as the said Wilbrod Joseph appears. We F are thus satisfied that the respondent has been late by 8 months or so in instituting this suit in the Primary Court because of the appellant' s conduct. We are of the view that this conduct of the appellant constitutes sufficient cause for the Primary Court to use its discretion to admit the proceedings after the expiration of the period of 12 G years in terms of sub-rule (4) of Rule 3 above mentioned. The trial court was therefore correct in entertaining the suit.

We therefore dismiss the appeal with costs in this court and the courts below, with liberty as stated by the trial H Primary Court for the appellant to claim compensation for any unexhausted improvements made on the land prior to the institution of the suit.

Appeal dismissed. I

1990 TLR p54

A

[zRPz]SANAI MURUMBE AND ANOTHER v MUHERE CHACHA 1990 TLR 54 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Nyalali CJ, Makame JJA and Ramadhani JJA

22 June 1990

Flynote

B Prerogative Orders - Certiorari - Circumstances under which it may issue.

Prerogative Orders - Scope of jurisdiction of the High Court.

C Criminal Practice and Procedure - Stock Theft Ordinance - Procedure to be followed - Section 15.

-Headnote

While 145 head of cattle of the respondent and another person were being moved from Mugumu to Mugeta village in Bunda District they disappeared at Singisi village, Serengeti District. It was sought to order the Singisi villagers to D compensate the respondent. Consequently an inquiry was instituted in the District Court of Mugumu under section 15 of the Stock Theft Ordinance, Cap.422. The inquiry was instituted before seizing the cattle. Being dissatisfied with the proof of the claim the District Court dismissed it. As that decision was not appealable the aggrieved party E applied for and was granted an order of certiorari by the High Court. After quashing the proceedings the judge went further and ordered the villagers to compensate the respondent.

On appeal the compensation order was attacked. It was submitted that the judge was wrong in treating the matter F as if it was an appeal. It was further contended that the judge acted beyond the scope of his jurisdiction. The appeal court considered the matter raised and also the proper procedure to be followed under section 15 of the Stock Theft Ordinance.

G Held: (i) An order of certiorari is one issued by the High Court to quash the proceedings of and decision of a subordinate court or tribunal or public authority where, among others, there is no right of appeal,

(ii) the High Court is entitled to investigate the proceedings of a lower court or tribunal or public authority on H any of the following grounds apparent on the record:

(a) taking into account matters which it ought not to have taken into account;

(b) not taking into account matters which it ought to have taken into account;

I (c) lack or excess of jurisdiction;

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NYALALI CJ, MAKAME JJA and RAMADHANI JJA

(d) conclusion arrived at is so unreasonable that no reasonable authority could ever come to it; A

(e) rules of natural justice have been violated;

(f) illegality of procedure or decision;

(iii) the judge properly granted the order of certiorari because the decision of the subordinate court was B contrary to the evidence and that the magistrate was biased against the respondent, the order was also to issue because the procedure under section 15 of the Stock Theft Ordinance was not complied with;

(iv) under section 15 of the Stock Theft Ordinance Cap. 422 an authorized officer is required to seize cattle C from the village suspected of cattle rustling equal to the number of cattle stolen and then to apply for an inquiry. That was not done in this case;

(v) the compensation order for the 145 head of cattle given by the judge was contrary to the existing law. D

Case Information

Order accordingly.
Kahangwa, for the appellants
[zJDz]Judgment
Ramadhani, J.A.: An inquiry was instituted in the District Court of Mugumu, Serengeti District, under section 15 E of the Stock Theft Ordinance, Cap. 422. The inquiry was erroneously treated as Criminal Case No 295/86. Briefly the facts were that some 145 head of cattle belonging to the present respondent, Muhere Chacha, and another F person, who was P.W.3 in the District Court, disappeared at Singisi Village, Serengeti District. The cattle were being moved from Mugumu to Mugeta Village in Bunda District. It was sought to order the Singisi Villagers to compensate the respondent. The villagers were represented in the proceedings by Sanai Mrumbe, the Village G Chairman, and Joseph Mimberera the Secretary, who are now 1st and 2nd appellants respectively. The District Court, being dissatisfied with the proof of the claim, dismissed it. As that decision was not appealable, the aggrieved party applied for and was granted on order of certiorari by the High Court of Tanzania (Munyera, J.). The learned judge after quashing the proceedings went further and ordered the villagers to compensate the respondent. This H appeal is against that order.
Before us and on behalf of the appellants was Mr. Kahangwa, learned counsel, while the respondent appeared in person. Two grounds of appeal were filed. One, it was submitted that the learned judge misdirected himself in law I in treating the matter as if it were an appeal.
1990 TLR p56
NYALALI CJ, MAKAME JJA and RAMADHANI JJA
A Two, it was contended that in certiorari the most the superior court could do was to quash the decision complained of thereby reinstating the status quo. Mr. Kahangwa pointed out that in the present case the learned judge, after compensation, which had been denied, as if this was an appeal. He referred us to a number of B authorities which we shall touch upon in due course. The respondent, on the other hand, merely expressed the difficulty he would encounter in summoning his witnesses if he were to institute a fresh inquiry.
An order of certiorari is one issued by the High Court to quash the proceedings and the decision of a subordinate C court or a tribunal or a public authority where, among others, there is no right of appeal. The High Court is entitled to investigate the proceedings of a lower court or tribunal or a public authority on any of the following grounds, apparent on the record. One, that the subordinate court or tribunal or public authority has taken into account D matters which in ought not to have taken into account. Two, that the court or tribunal or public authority has not taken into account matters which it ought to have taken into account. Three, lack or excess of jurisdiction by the lower court. Four, that the conclusion arrived at is so unreasonable that no reasonable authority could ever come to E it. Five, rules of natural justice have been violated. Six, illegality of procedure or decision. (Associated Provincial Picture Houses, Ltd. v Wednesbury Corp. [1947] 2 All E.R. 680 and Council of Civil Service Unions v Minister for the Civil Service [1984] 3 All E.R.935).
In Tanzania certiorari is provided for in Sections 17,18 and 19 of the Law Reform (Fatal Accidents and F Miscellaneous Provisions) Ordinance Cap.360.

In the exercise of such investigation the High Court is not entertaining an appeal. If any of the above six grounds has been offended the proper action of the High Court is to quash the decision and the proceedings. On that principle of G law Mr. Kahangwa has referred us to R.v Northumberland Compensation Appeal Tribunal ex parte Show [1952] 1 All E.R. 122, R.v Net Bell Liquors [1922] A.C. 126; Associated Provincial Picture Houses Ltd., v Wednesbury Corp. [1947] 2 All E.R. 680 and Anisminic Ltd. v Foreign Compensation Commission [1969] 1 H All E.R. 208. Thus for instance Lord Green, M.R. has said in Associated Provincial Picture Houses (already cited above at p.685) that:

The power of the court to interfere in each case is not that an appellate authority to averred a decision of the local I authority,

but is that of a judicial authority which is concerned, and concerned only, to see whether the local authority have A contravened the law.

Munyera, J. in the present case, was well aware of the above outlined legal position for he said: B

Finally the question is what should this court do. Normally an order of certiorari is to quash the decision complained against. But in this case mere quashing of the Magistrate's order will not afford the justice desired. Moreover, subordinate to the High Court and the matter is properly before the later. I think I can correct what I believe to be an error. C

After that the learned judge went ahead to order the compensation for the 145 head of cattle. With due respect, and though the learned judge had the best of intentions, that was contrary to the existing law. D

The learned judge granted the order of certiorari because the decision of the learned magistrate was contrary to the evidence before him and he concluded that the magistrate was biased against the present respondent. However, there was another reason why the order should have been granted. Again the learned judge touched on it but discarded it. E

Under section 15 of the Stock Theft Ordinance, Cap. 422, an authorized officer is required to seize cattle, from the village suspected of cattle rustling, equal to the number of cattle stolen and then to apply for an inquiry. That was not done in this case. According to the learned judge experience has shown that if some cattle are seized as required by F law, by the time the inquiry is over the seized cattle are no where to be found and the court order becomes impossible to execute. So in practice inquiry is done first and then cattle are seized only if there is an order to compensate the applicant. The learned judge was of the view that "instituting enquiry before seizing the cattle did not offend the law". With due respect again the law was offended and an order of certiorari had to issue for the G procedural defect.

We sympathize with the respondent. But that is the inconvenience brought about by legislation which seek to oust the power of the High Court by denying appeals to it. H

So the order of certiorari quashing the proceedings of the District Court is upheld. The order of High Court for compensation to the respondent is set aside and any stock attached in execution of the decision of the High Court is directed to be released and restored to the owners. I

Order accordingly.
1990 TLR p58
A
[zRPz]AMANI RAJABU NJUMLA v THOMAS AMRI 1990 TLR 58 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Bahati J

12 July 1990
Flynote
B Land Law - Power of village government to allocate land - Status of land after demise of the occupier.
-Headnote
In a suit before the trial Primary Court the respondent was found not to be entitled to build on the appellant's C father's land. On appeal to the District Court it was held that the respondent was so entitled because he had been given the plot on which he built the house by the village authorities.
The High Court, on further appeal, found that the allocation of the disputed land to the respondent was invalid and D allowed the appeal with costs.
Held: (i) The village government may allocate land to anyone. But that does not mean that the village government has power to take away land from one person and give it to another. The appellant and his relations are competent E to succeed to their late father.
Case Information
Maira, for appellant
Marando, for respondent
[zJDz]Judgment
F Bahati, J.: The dispute in this case is whether the respondent was entitled to build on the appellant's father's land. The Primary Court held that he was not entitled. But the District Court held that he was entitled because he had been given the plot on which he built the house by the village authorities.
G In his submission, Mr. Maira, learned counsel for the appellant, said that the village government had no power to allocate land which is not vacant. In reply to that, Mr. Marando, learned counsel for the respondent argued that the land had fallen vacant after the appellant's father died and that the village government then allocated it to the H respondent. Mr. Marando further submitted that the appellant should have asserted ownership of his land against the village government and that the appellant did not even have letters of administration to administer his father's estate. He concluded that the proceedings in the Primary Court should be looked into as they appear to be irregular I in view of the summing up made which is contrary to government notice No.2 of 1988.
1990 TLR p59

In a further reply, Mr. Maira submitted that the land never became vacant upon the demise of the appellant's father A and that the appellant was claiming as a successor and that his title was not in dispute. With regard to GN. No.2 of 1988, Mr. Maira said that the summing up did not occasion a failure of justice.

I accept the submission that the village government may allocate land to anyone. But that does not mean that the B village government has power to taken away land from one person and give it to another. Although Mr. Marando cited the Ujamaa Village Act, he did not specify which provisions in the Act empowered the village government to allocate land belonging to one person to another. C

Therefore prima facie the allocation of the land to the respondent was ultra vires and therefore void. Secondly, there can be no questioning of the appellant's competence and his relations to succeed their late father.

This was not in dispute in the courts below and it cannot be made an issue now. As for the summing up which was D made in contravention of GN.2 of 1988, in view of the fact that it did not occasion any failure of justice the irregularity is curable.

Appeal allowed. E

1990 TLR p59

F

[zRPz]RASHIDI KIRANDA v REPUBLIC 1990 TLR 59 (HC)

Court High Court of Tanzania - Tabora

Judge Chipeta J

29 June 1990

Flynote

Criminal law - Unlawful possession of government trophy - Essential elements of the offence. G

Criminal Practice and Procedure - Sentencing - Value of property involved essential in assessment of sentence - Need to prove value.

-Headnote

The appellant was arrested during an operation code-named "Operation Uhai", charged with and convicted of the H offence of unlawful possession of government trophy. The defence raised by the appellant during trial was that although the elephant tusks were recovered from his house they belonged to other people, they were not his. On conviction he was sentenced to ten years imprisonment although the value of the tusks was not established. On I appeal against both conviction and sentence.

1990 TLR p60

CHIPETA J

A Held: (i) Since the appellant admitted possession and he had no authority to possess government trophies the conviction was inevitable. The circumstances in which he came to possess the same could only be a mitigating factor in sentencing;

(ii) where the value of property involved in the commission of an offence is a necessary element in the B assessment of sentence the value must be strictly proved by credible evidence. In the absence of such evidence the accused must be given the benefit of doubt - Abdalla Ali v R. [1969] H.C.D. 298; Amri v R. [1971] H.C.D. 126 followed.

Case Information

C Appeal dismissed.

Ruta, for the respondent.

[zJDz]Judgment

D Chipeta, J.: In Kigoma Resident Magistrate's Court, the appellant, Rashidi Kiranda, was charged with and convicted of the offence of unlawful possession of Government trophies contrary to sections 56 (1) and (2) and paragraph 16 (d) of the Economic and Organised Crime Control Act, 1984 as amended by Act No. 10 of 1989, read together with section 67 (1) and (2) of the Wildlife Conservation Act, 1974. He was sentenced to ten (10) E years imprisonment. He now appeals against the conviction as well as the sentence.

The prosecution's evidence was that during an operation code-named "Operation Uhai", police received information that there were elephant tusks in the appellant's house. On 3rd June, 1989, armed with a search warrant, D/Sgt F Joseph (P.W. 1) accompanied by another police officer proceeded to the appellant's house at Kazuramimba. On arrival there, they told the appellant that they suspected that he was in possession of government trophies, a gun and some ammunition. The appellant replied that he only had a gun. When the house was searched, police found three G eland tails for which the appellant had no certificate for his possession of them. A further search revealed a hunter's torch and some ammunition.

Thereafter, the search party demanded a hoe and they started digging up the then floors of the house. When they H started digging up the floor of a room at the back, the appellant told them to stop and said that he would show them where he had hidden the elephant tusks. The appellant then removed grass from a certain place, thus revealing a corrugated iron sheet. He removed it and dug out the soil to a depth of three to four feet and unearthed two elephant tusks.

I When the appellant was asked about these elephant tusks, he said that they belonged to a game Officer and that he had hidden them

because he feared that they could be stolen. The appellant had no licence to possess those elephant tusks. A

In his defence, the appellant insisted that the elephant tusks belonged to game scouts called Masanja and Mrisho. He repeated that story before this court during the hearing of this appeal.

With great respect to the appellant, I think he is labouring under his massive ignorance of the law. As the learned B trial resident magistrate pointed out, the charge was that of unlawful possession and not ownership. Since the appellant admitted possession and he had no authority to possess the Government trophies, the conviction was C inevitable. The circumstances in which he came to possess the same could only be a mitigating factor in sentencing.

The appeal against the conviction, therefore, is without merit.
Regarding the sentence, Mr. Oswald, learned state attorney, submitted that the sentence was unlawful. In his D submission, the trial court should have taken judicial notice that two elephant tusks had a value of more than Shs. 5 million.
As was pointed out by the learned trial magistrate and conceded by Mr. Oswald, there was not a scintilla of E evidence as to the value of the trophies. What is more, we do not know the weight of the elephant tusks nor the price per kilogram of trophies at the relevant period. What is more, this court is ignorant of the size of these elephant tusks.
I am of the view that where the value of property involved in the commission of an offence is a necessary element in F the assessment of sentences, the value must be strictly proved by credible evidence. In the absence of such evidence, the accused must be given the benefit of the doubt. (See Abdalla Ali v R. [1969] H.C.D. n. 298; and Amri v.R., [1971] H.C.D. n. 126). G
For the foregoing reasons, I am of the view that the learned trial magistrate was perfectly entitled to give the appellant the benefit of doubt in the circumstances.
In the upshot, this appeal fails and so is hereby dismissed in its entirety. H
Appeal dismissed.
1990 TLR p62
A
[zRPz]DANIEL s/o MAOGELE AND TWO OTHERS v REPUBLIC 1990 TLR 62 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Kisanga JJA, Ramadhani JJA and Mfalila JJA

16 July 1990
Flynote
B Criminal Practice and Procedure - Appeal - Conviction of murder - Notice of appeal - Appeal against sentence - Nature of such notice - Whether appeal has been instituted.
Criminal Practice and Procedure - Representation - Conflict of interest among accused - Need for separate C representation.
-Headnote
This appeal, from the conviction of murder by the High Court of Tanzania, was brought before the Court of Appeal for hearing. Before hearing two matters arose. First, the advocate for the three appellants said that there was D conflict of interests among the accused persons. Second, the Court on its own motion pointed out that the appeal before was against the mandatory sentence of death. On the basis of second reason the advocate for the appellants held the view that there was no appeal before the court.
E Held: (i) (Kisanga J.A. dissenting). That the notice before the court is valid but defective and that an emended version was necessary;
(ii) in view of the apparent conflict of interests among the appellants another advocate is to be assigned.

F (iii) (Per Kisanga, J.A.) no appeal has so far been instituted because the appellants have given no notice to appeal against conviction, their notice to appeal against sentence only being invalid.

Case Information

Appeal adjourned.

G Marando, for the appellants

Kaduri, state attorney for the Republic

[zJDz]Judgment

H Ramadhani and Mfalila, JJ.A.: Mr. Marando, learned counsel, informed the Court, when the appeal came up for hearing, that as there was a conflict of interests among the appellants, he was unable to represent all three of them and consequently his failure to file any memorandum of appeal. Mr. Marando drew our attention to the fact I that two counsel were assigned at the trial. He therefore applied for adjournment so that additional counsel could be appointed. Mr. Kaduri for the respondent Republic did not object to the application.

1990 TLR p63

RAMADHANI JJA and MFALILA JJA

The Court on its own motion drew the attention of Mr. Marando to the joint notice of appeal of the appellants. It is A stated there that the appeal is against the mandatory sentence of death which was imposed consequent to the conviction for murder. Mr. Marando opined that the appeal ought to have been against conviction.

Indeed section 6 (1) of the Appellate Jurisdiction Act, 1979 prescribes so when it provides, in the relevant part, as B follows:

6 (1) Any person convicted on a trial held by the High Court or by a subordinate Court exercising extended powers may appeal to the Court of Appeal. C

(a) where he has been sentenced to death, against conviction on any ground of appeal;

The Court of Appeal is seized of an appeal when a notice of appeal is lodged. The issue now is whether with this D anomaly, that is a notice of appeal against sentence instead of against conviction, it can be said that the Court is seized of an appeal. In other words has a valid notice of appeal been lodged.

Mr. Marando was of the opinion that there was in effect no appeal at all before the Court and hence it was wrong E on his part to ask for an adjournment as there was nothing to be adjourned.

A similar situation like this arose in the appeal of Jamal Ismail v R. Criminal appeal No. 163 of 1989. This court upheld the argument that there was a notice of appeal before the Court but that it was defective. We would F therefore reiterate what we had said earlier on in Jamal Ismail v R. That:

Complete failure to file any notice at all would render the proposed appeal incompetent. It would be rather akin to G complete failure to extract the decree in a proposed Civil appeal. In the instant case some attempt was made to comply with the Rule and without the guidance of counsel. There can be no doubt that this was an unintentional slip by laymen, there being no possibility of appealing against sentence only. H

As such the Court is seized of the appeal and we direct Mr. Marando to amend the notice of appeal informally and we further direct the Registrar to assign another counsel for the third appellant while Mr. Marando represents the first two appellants. The appeal is adjourned to a date to be fixed. I

1990 TLR p64

KISANGA JA

A Kisanga, J.A.: I have had the advantage of reading in draft the majority ruling of the court in this matter. The background to the matter has been set out in the majority ruling I need not repeat it here.

The only point on which opinion is divided is whether there is an appeal before us which we can adjourn to enable B counsel to take further steps in the matter. The majority view is that there was a defective notice which in law constituted the appeal and therefore the court could validly adjourn such appeal for the purposes as intimated above. I am of a different view.

C The Court of Appeal in its function is guided by the Appellate Jurisdiction Act 1979 and the Court of Appeal Rules also of the same year. It is these two instruments which guide the Court of Appeal in the exercise of its function which is exclusively appellate. The right and procedure of appeal by persons who have been sentenced to death are to be found under the Appellate Jurisdiction Act and the Court of Appeal Rules. The majority view D acknowledges that, in terms of section 6 (1) of the Appellate Jurisdiction Act there is no provision for appeal against sentence only; there is only provision in the Court of Appeal Rules which sanctions an appeal against sentence only.

E I am unable to accede to the majority view that the appellants being laymen, and acting without the guidance of counsel, took as wrong view of the law and unintentionally appealed against sentence only. The record shows that after passing the death sentence on 20.9.89 the trial judge explained to the appellants their right of appeal. In the F absence of any indication to the contrary, the learned judge must be taken to have explained to them fully their right of appeal including the right to appeal against conviction; there can be no reason to think that he did not explain to them their right of appeal against conviction, and indeed the appellants have not suggested so. On the same day (20.9.89) the appellants gave notice of appeal in the following terms:

G The appeal is against the sentence only.

That sentence is couched in terms which clearly show that the appellants were aware of more than one right of appeal but that they consciously chose to exercise the right to appeal against the sentence only. That would be H consistent with the view that the trial judge must have explained to them their right to appeal against conviction as well but they opted against it and in favour of appealing against the sentence only.

I Not only that. The appellant's notice of appeal was in strict compliance with the requirements of the law. Rule 61 of the Court of

1990 TLR p65

KISANGA JA

Appeal Rules says, inter alia, that: A

61 (1) any person who desires to appeal to the Court shall give notice in writing, which shall be lodged in triplicate with the Registrar of the High Court at the place where the decision against which it is desired to appeal was given, within B fourteen days of the date of that decision, and the notice of appeal shall institute the appeal.

(2) ....

(3) ....

(4) ....

(5) C

(6) ....

(7) a notice of appeal shall be substantially in the form B in the First schedule to these Rules and shall be signed by or on behalf of the appellant. D

The relevant part of Form B reads:

TAKE NOTICE that.....appeals to the Court of Appeal of Tanzania against the decision of the Honourable Mr. Justice..... given at.....on the .....day of.....19..... whereby the appellant was convicted to.....and E sentenced to.....

The appeal is against conviction only/conviction and sentence/sentence only. F

The marginal note says: "Delete inappropriate words or amend as necessary".

In compliance therewith the appellants gave their joint notice of appeal within the prescribed time limit and opted to appeal against sentence only. In other words the law gave them three options, viz. to appeal against conviction only G or to appeal against both conviction and sentence or to appeal against sentence only and required them to show which option they chose the last option, namely, to appeal against sentence only, thereby deleting or missing out the options to appeal against conviction or against conviction and sentence. That was clearly a conscious act of H selecting or choosing one option out of three given options, and I could find no room for the view that the appellants might have taken a wrong view of the law or that they might have been under some misapprehension as to their rights of appeal or as to which right of appeal exactly they intended to exercise. I

1990 TLR p66

KISANGA JA

A There is equally no support for the view that notice of appeal was defective. For, the notice was given within the prescribed time limit, and it was in accordance with the appellants' own wish or intention in that the appellants, out of the three specified options, desired to appeal against sentence only and they in fact did just that. I can see nothing B defective about that. It would have been a different matter if it appeared that the appellants had wished or intended to appeal against conviction or against conviction and sentence but that for one reason or another they could not achieve that aim. But, as has been demonstrated out of the three options open and known to them, the C appellants chose not appeal against conviction or conviction and sentence; instead they chose to appeal against sentence only. There was nothing to prevent them from appealing against conviction or against conviction and sentence if they were minded to do so. In short, my own view is that at the time of giving the notice of appeal, the D appellants had no intention of appealing against their conviction otherwise there was nothing to prevent them

from doing so. To my mind the appellants' express declaration that "The appeal is against the sentence only" means precisely what it says and could not possibly be said to include, or to be confused with, a wish or intention to E appeal against conviction. To say that declaration includes an intention to appeal against conviction would be tantamount to ascribing to the appellants an intention which they did not have, and that in my opinion would be patently wrong.

To my mind it would not be quite correct either to compare, like the majority view has done, the situation here with F one in civil cases where there has been failure to extract the decree. The two situations appear to be different. In the civil case the ground for complaint would be that an intending appellant has failed to take an essential step in the proceedings i.e. to extract the decree. That necessarily presupposes that the appeal, meaning the proceedings, is G already instituted. In the instant case, however, the view I have taken is that no appeal has so far been instituted or initiated. That is to say the appellants have given no notice (or purported notice) of appeal against conviction to institute an appeal against conviction. What they have done is to give notice of appeal against the death sentence H only, which in law does not exist or is not sanctioned, and which therefore the court cannot take cognizance of.

For the reasons I have endeavoured to give, it seems plain to me that at the time of giving the notice, the appellants I did not wish or intend to appeal against conviction even though they were aware of that right. Such intention was formed by, or ascribed to them only subsequently but then no necessary steps have so far been taken to

effect such subsequent intention. In my view, therefore, there was no question of the appellants having given a A defective notice of appeal or having made an attempt to appeal against conviction because they had no intention of appealing against conviction at the material time. There was simply no notice or a purported notice of appeal against B conviction. There was merely a misconceived appeal against sentence only.

I would therefore, with respect, subscribe to Mr. Marando's view that there is in law no appeal before us because no notice has been given to institute or initiate the same. On that account I would have declined to grant an C adjournment because in law there is nothing before us which can be adjourned. In my view to grant an adjournment and to require counsel to amend such misconceived notice of appeal would amount to an attempt to improve upon something which, in law, does not exist. I would have struck out the appeal as being misconceived and counsel to D take the necessary steps of applying to the convicting court, under section 11 (1) of the Appellate Jurisdiction Act, for extension of time to file notice of appeal against conviction.

Order accordingly. E

F

[zRPz]P.S. PARMAR AND A. ADAMJEE v PAULO E. MARO 1990 TLR 67 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Makame JJA, Kisanga JJA and Mfalila JJA

16 July, 1990
Flynote
Landlord and Tenant - Vacant possession - Residential as well as commercial premises - Alternative accommodation G reasonably equivalent - Meaning - Section 25 (e) (i) and sub-section 2 interpreted.
-Headnote
In a suit for vacant possession of premises which were both commercial and residential, the trial Regional Housing Tribunal found, inter alia, that an order for vacant possession was inappropriate as there was not available to the H appellants reasonable equal alternative accommodation. On appeal to the Housing Appeals Tribunal the finding of the trial Regional Housing Tribunal was affirmed. On further appeal to the High Court, the appellate judge allowed the appeal by the respondent and ordered repossession of the premises holding that the respondent was without a I
1990 TLR p64
A house therefore refusing him the order of repossession would cause him greater hardship than the appellants would suffer by being evicted.
The Court of Appeal reversed the High Court decision and restored the holding of the Housing Appeals Tribunal.
B Held: (i) What is alternative reasonably equal accommodation is a question of law involving the interpretation of section 25 (e)(i) and subsection (2). The Rent Restriction Act requires for both residential and commercial premises (before section 25 was amended by Act 5/ 1990) that before making an order for recovery of possession, the C Tribunal must be satisfied that alternative accommodation, reasonably equivalent is available or will be available at the time that the order takes effect;

(ii) the law in Tanzania requiring reasonably equivalent alternative accommodation is more demanding than in D England where alternative accommodation is only required to be suitable;

(iii) where the premises are used both for alternative accommodation which cannot be used both for residential and commercial purposes cannot be reasonably equivalent to the suit premises.
Case Information
E Appeal allowed.
[zJDz]Judgment
Mfalila, Makame and Kisanga, JJ.A.: In the Dar es Salaam Regional Housing Tribunal, the respondent Paulo F E. Maro applied for vacant possession of the premises in house No. 89 Plot 9 Block 54 along Uhuru Street, Dar es Salaam. He made this application on three grounds. The first ground was non payment of rent by the appellants from 1st January, 1986, that the appellants had failed or refused to pay rent from that date. The second ground was G that the respondent requires the premises for his own use and that of his family as he has no other accommodation

available to him after being evicted from his former employer's premises. The third ground was that the appellants had in breach of the conditions of their tenancy, sublet the premises to third parties. In the premises, the respondent prayed for vacant possession, arrears of rent from 1st January, 1986 at shs. 13,500/= per month and costs. The H Regional Housing Tribunal dismissed the application on the basis that the respondent had not proved that there was available to the appellants reasonable equal alternative accommodation to which they could move. Secondly that I there was no evidence showing that the appellants had sublet the premises as alleged, on the contrary the respondent had found all the occupants in the premises at the time he

bought them in 1981. Against this decision the respondent appealed to the Housing Appeals Tribunal which A dismissed the appeal on the ground that non payment of rent had not been proved, in fact the Tribunal found the allegation false. Secondly that there was no proof that the appellants had sublet the premises, but that in fact all the people in the house were there when the respondent bought the suit premises. Thirdly that the respondent had not B shown that there is available to the appellants suitable alternative accommodation to be used both for commercial and residential purposes like the present premises. Against this decision, the respondent successfully appealed to the High Court. The High Court, Mnzavas, J.K, (as he then was) allowed the appeal and ordered repossession in C favour of the respondent, holding that the landlord was houseless therefore refusing him the order of repossession would cause him greater hardship than the tenants would suffer by being evicted. The appellants applied to the High Court for leave to appeal to this Court against this decision. On 2nd September, 1989 Kyando, J., granted leave D and certified two points of law which are part of the memorandum of appeal. In their appeal to this Court, the appellants filed five grounds of appeal but we think these can be boiled down to two main complaints namely, first, that the learned Judge failed to consider matters that were specifically before the Court, instead proceed to consider and decide on matters that were not in issue. For instance instead of deciding on the applicability, extent and E meaning of section 25 (e) (i) and (ii) of the Rent Restriction Act 1984, non payment of rent and subletting and therefore whether it was open to the Court to make an order of repossession, the Court merely considered whether the landlord required the premises for himself and his family. Secondly that the learned Judge erred in taking F additional evidence without good cause.

As indicated at the beginning of this judgment, the respondent applied for vacant possession of his premises on three grounds, namely non payment of rent, subletting and that he requires the premises for his own use. The first G two grounds are questions of fact and therefore cannot be subjects of appeals to this Court. In fact both the Regional Housing Tribunal and the Housing Appeals Tribunal made specific findings of fact that the respondents allegation of non payment of rent was false and that the allegation of subletting was not proved in view of the fact H that all the occupants of these premises were present when the respondent bought the premises in 1982. Therefore both in the High Court and in this Court; the respondent was left with only one ground namely the he reasonably requires the premises for his own use and that of this family.

But this is only the first limb of the question and as I a question of fact it should properly be decided by the two Housing Tribunals. It is the second limb
1990 TLR p70
MFALILA JJA, MAKAME JJA AND KISANGA JJA
A - namely whether alternative accommodation, reasonably: equivalent is available or will be available at the time that the order takes effect, or that the tenant has built or owns a dwelling house suitable for his own accommodation which is available to him or would be so available but for his own act in disposing of the same, B which called for a decision in the High Court. The same applies to commercial premises. What is alternative reasonably equal accommodation is a question of law involving the interpretation of section 25 (e) (i) and subsection (2). In the light of this, the appellants' complaints against the approach and decision of the High Court would appear C to be justified. In the course of the hearing of the appeal in the High Court, the question was whether the Landlord reasonably required the premises for himself and his family for occupation. We think with respect that Counsel for the appellants wasted a lot of his energy trying to disprove or rather to show that the respondent had not proved D that he reasonably required the premises for his own occupation. In his evidence, the respondent had stated quite clearly in our view that having lost his former residence along with his employment with the Posts and Telecommunications Corporation, he had to turn to his own house as he had nowhere else to go. Counsel for the E appellants insisted that the respondent could only prove his need by producing documentary evidence that he had lost his staff accommodation along with his employment. This insistence on documentary proof may be uncalled for in situation where the Landlord cannot get such evidence. If pushed to its logical conclusion, it may result in hardship F to the Landlord. We think that on the evidence, the respondent lost his job and accommodation that went with it, he was therefore entitled to turn to the only accommodation available to him namely his own premises. But establishing that he reasonably requires the premises for his own occupation is not the end of the matter. The Rent G Restriction Act requires for both residential and commercial premises (before section 25 was amended by Act 5/1990) that before making an order for recovery of possession on this ground, the Tribunal must be satisfied that alternative accommodation, reasonably equivalent is available or will be available at the time that the order takes H effect. Thus in this case the more important question for the High Court related to the second limb, the availability of the alternative reasonably equivalent accommodation. It was only after answering that question that the Court could have gone on to dispose of the question provided in subsection (2) of section 25, namely whether having regard to I all the circumstances of the case it is reasonable to make such an order and that unless such an order is made great hardship will be caused to the landlord. As it turned out,
1990 TLR p71
MFALILA JJA, MAKAME JJA AND KISANGA JJA
the High Court skipped the middle question and held that since the landlord was houseless, it was reasonable to A make an order for recovery of possession and that greater hardship will be

caused to the landlord if the order is not made. This is the appellant's main complaint in this appeal, and with respect we agree that the High Court skipped an essential step in the process. B At the trial, the respondent stated that both appellants had available to them alternative accommodation. In the case of the first appellant, he said, he has other accommodation currently used as commercial premises styled FURAHA TAILORING along Livingstone Street. As for the second appellant, he said, he has his own residence opposite the C suit premises along Uhuru Street. Both appellants conceded that they had such premises, but they stated that not only are these premises not available to them, but they are not suitable and reasonably equivalent to the suit premises which are used for both residential and commercial purposes. The respondent countered that since D commercial and residential premises are separately provided for in the Act, if the suit premises are used both for residential and commercial purposes, then the alternative accommodation answering to one of the descriptions is reasonably equivalent, and that therefore the Housing Appeals Tribunal was wrong to hold otherwise. The E alternative accommodations referred to commercial purposes not for both as the present premises. Are these therefore reasonably equivalent to the present premises in terms of Section 25 (1) (e) (i) and (ii) of the Rent Restriction Act? If the appellants are evicted from the present premises, they will not be able to carry on the F activities they are able to do in the present premises, namely, reside and work. They will only be able to do one or the other. In England, where the alternative accommodation is only required to be suitable, as opposed to ours which is required to be reasonably equivalent, the Court of Appeal held in Warren v Austen [1947] 2 All E.R. G 185 that where a tenant living in premises with playing facilities for his children and an agreement which entitled him to take in paying guests to supplement this income, alternative accommodation without these facilities was not suitable accommodation. In the Tanzanian positon where the alternative accommodation must H be reasonably equivalent, the position is even more demanding and that therefore in the present case is the alternative accommodation which cannot be used both for residential and commercial purposes cannot be reasonably equivalent to the suit premises. With such a finding it is not necessary and it should not have been I necessary for the High Court to go and consider the question under subsection (2) whether it is reasonable to

A make such an order and whether unless such an order is made great hardship will be caused to the landlord.

The second main ground of appeal centred on the learned Judge's calling for additional evidence designed to show whether or not the landlord reasonably required the premises for his own occupation. Since there were no B conflicting views in the two lower Tribunals on the matter, we think there was no need for a second appellate Court to require proof of this fact. There could be situations where a second appellate Court can feel compelled to take such action, but this is not one of them. In fact it only ended up confusing issues before the Court. C The Court answered wrong questions leaving the right ones unanswered. But on the view that we have taken of the second limb to be requirements imposed by section 25 (1) (e) (i) and (ii) we do not feel we are called upon to say any more on the matter.

D For these reasons we allow the appeal by setting aside the judgment and orders of the High Court and restoring those of the Housing Appeals Tribunal. We also make an order for costs in favour of the appellants.

Appeal allowed.

1990 TLR p72

E

[zRPz]VIOLET ISHENGOMA KAHANGWA AND JOVIN MUTABUZI v THE ADMINISTRATOR GENERAL AND MRS. EUDOKIA KAHANGWA 1990 TLR 72 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Kisanga JJA, Makame JJA, Mfalila JJA

F 16 July 1990

Flynote

G Administration of Estates - Intestacy - Customary law applicable - Whether Administrator-General can administer the estate under customary law - Whether Administrator-General needs to appear before a Primary Court by reason of administering the deceased's estate under customary law.

H Administration of Estates - Father dies intestate - Whether illegitimate children qualify for distribution of the deceased's estate.

Family Law - Children - Meaning of.

I Family Law - Putative father's duty to maintain children - Nature of the duty - Duration of the duty.

1990 TLR p73

KISANGA JJA, MAKAME JJA AND MFALILA JJA

-Headnote

In an application for directions the High Court directed that the life style of the deceased at the time of his death was A governed by the traditions, customs and practices of the Bahaya tribe to which he (the deceased) belonged, therefore, the law applicable in administering the distribution of the estate was the customary law of the Bahaya. The High Court further directed that since the first appellant was not lawfully married to the deceased because the B previous monogamous marriage to the second respondent was still subsisting, the 2 issues of the deceased's cohabitation with the f irst appellant were illegitimate children who under the applicable Bahaya customary law did not legally qualify for distribution, because an illegitimate child cannot inherit from the father's side upon his dying C intestate. On appeal to the Court of Appeal against the directions.

Held:(i) In administering the estate the Administrator-General does not have to appear in the Primary Court for any purpose because he is not acting as an advocate representing a particular party. All that is required of him is to D distribute the estate to all those who qualify for distribution. In case he runs into a difficulty he may turn to the High Court f or direction.

(ii) under paragraph 43 of the Local Customary Law (Declaration) (No.4) Order, 1963, G.N. No.436 as applied to the Bahaya tribe vide G.N.No.605 of 1963, an illegitimate child cannot inherit from the father's side E upon his dying intestate;

(iii) a child as defined under the Law of Marriage Act, 1967 does not include an illegitimate child, thus the word "children" in section 129 (1) of the Law of Marriage Act does not include illegitimate children;

(iv) a putative father's obligation to his illegitimate children is personal and ends with his death. It does not F survive him and cannot attach to his estate upon his dying intestate.

Case Information

Appeal dismissed.

Malingumu Rutashobya for the appellants G

Rugonzibwa, for the first respondent

W. Kapinga, for the second respondent

[zJDz]Judgment

Kisanga, Makame and Mfalila, JJ.A. This appeal arises from the decision of the High Court (Mapigano, J.) H upon an application to him for directions on matters relating to intestate succession.

The deceased Bruno Kahangwa died intestate on 28.12.86. He was survived by his widow Eudokia Kahangwa (the second respondent) with whom he had celebrated a monogamous Christian marriage on 6.11.82. He was also I survived by a female child (Lilian) of that marriage

1990 TLR p74

KISANGA JJA, MAKAME JJA AND MFALILA JJA

A born on 17.8.83. At the time of death, however he and his widow, Eudokia, had been estranged and were living apart but their marriage was still subsisting. Their daughter Lilian was staying with the mother. In the meantime the deceased was living or cohabiting with another woman, Violet Ishengoma (the first appellant) with whom he B contracted a customary law marriage as evidenced by a marrying certificate put in evidence and dated 25.6.86. During their association or cohabitation the deceased and Violet begot two children - Reynold born on 1.12.84 and Diana born on 9.2.86.

C Following the death of the deceased, his widow Eudokia, applied that the Administrator-General (the first respondent) be appointed administrator of the deceased's estate. The application was duly granted by the High Court, but subsequently Violet Ishengoma (the first appellant) and Jovin Mutabuzi, a brother of the deceased (the D second appellant) applied for the revocation of that appointment and instead asked that the said Jovin Mutabuzi (the second appellant) be appointed to administer the estate in accordance with the customary law of the Bahaya. In the High Court the applicants/appellants Violet Ishengoma and Jovin Mutabuzi were represented by Mr. E Malingumu Rutashobya. Mr. Ngoto appeared for the first respondent, the Administrator-General while Mr. W.B.L. Kapinga was for the second respondent Eudokia Kahangwa. At the hearing before the High Court however, the applicants/appellants abandoned their application for the revocation of the appointment of the Administrator-General as the

administrator of the estate, but the Court was asked by the parties for direction on F two matters:

1. Whether the customary law of the Bahaya should govern the distribution of the estate, and

G 2. Whether the two children of the deceased viz. Reynold and Diana by the first appellant would qualify for a share or shares in the distribution of the estate.

The learned Judge in a painstaking decision came to the conclusion that the distribution of the estate was governed H by the customary law of the Bahaya, it appeared to him that the life style of the deceased at the time of his death was governed by the traditions, customs and practices of the Bahaya tribe to which he (the deceased) belonged. Accordingly, the learned Judge directed the Administrator-General to apply that law.

I On the second question the learned Judge held that the two children did not qualify for distribution because they were illegitimate. This is

how he arrived at that conclusion. The purported customary law marriage between the deceased and the first A appellant was, under section 38 (1)(c) of the Law Marriage Act, a nullity because in terms of section 15 (1) of that Act the deceased had no legal capacity to marry by reason of his prior and subsisting monogamous marriage with the second respondent. The two children were, therefore illegitimate because they were born of an adulterous B association between the deceased and the first appellant. And under the Local Customary Law (Declaration) (No.4) Order 1963 published as G.N. No. 436 of 1963 and made applicable to the Bahaya tribe vide G.N. 605 of 1963, illegitimate children cannot inherit from the father's side upon the father dying intestate. Accordingly the C learned Judge directed the Administrator-General that the two children did not legally qualify for distribution. It is from that decision that this appeal arises.

Before us Counsel appearances were the same as they were in the High Court except that the D Administrator-General was now represented by Mr. T.Z. Ruganzibwa. Mr. Rutashobya filed and argued two grounds of appeal. For convenience, we set out here in below the two grounds together with the order he has asked for: E

1. That the learned Judge erred when he held that the estate of Bruno Kahangwa be administered according to the customary law of the Bahaya Tribe and yet declared that the two children of the deceased Raymond (sic.) Kahangwa and Diana Kahangwa do not legally qualify for distribution. F

2. That the learned Judge misdirected himself when he directed Administrator-General to apply the customary law of the Bahaya Tribe administrating the estate of the deceased without taking into account G the fact that the matter then came within the jurisdiction of the Primary Court competent to adjudicate on the matter where the Administrator General had no locus standi.

It is proposed to ask the Honourable Court of Appeal of Tanzania for the following Orders: H

(a) A declaration that the two children of the 1st Appellant Violet Ishengoma Kahangwa, Raymond (sic.) Kahangwa and Diana Kahangwa are entitled to succeed the estate of their father the late Bruno I Kahangwa;

1990 TLR p76

KISANGA JJA, MAKAME JJA AND MFALILA JJA

A (b) An order directing that the probate (sic.) proceedings in respect of the estate of the deceased should be adjudicated upon in a Primary Court of competent jurisdiction and that the estate of the late Bruno Kahangwa should be administered by the 2nd Appellant Jovin Mutabuzi according to the customary law B of the Bahaya tribe.

It is at once apparent that ground 2 is both incompetent and misconceived. Before the High Court Mr. Rutashobya C had abandoned his application to the court to revoke the appointment of the Administrator-General, and henceforth the matter proceeded on the footing that the Administrator-General was the duly appointed administrator of the estate. That is to say the matter was agreed to and duly settled in the High Court. For the learned Counsel to seek on appeal to question or criticize the appointment of the Administrator General is tantamount to re-opening the D issue to which Counsel himself had conceded. That, in our view, he cannot properly do because it would lead to endless proceedings.

Even assuming that it was open to him to raise that point at this stage, his ground for the complaint does not appear E sound. If we understood him correctly his argument is that it is the Primary Court which was competent to administer the customary law of the Bahaya, but that the appointment of Administrator-General was irregular in that it would make it impracticable for him (the Administrator-General) to administer the estate because he has no locus F standi in the Primary Court. By saying that the Administrator-General has no locus standi in the Primary Court we understand him to mean that the Administrator-General has no right of audience in that court. If this is what learned Counsel meant, and we could not figure what else he could have meant, then with respect he must have got G mixed up as to the role and function of the Administrator-General in the matter. In administering the estate the Administrator-General does not have to appear in the Primary Court for any purpose. For, he is not acting as an advocate representing a particular party. All that is required of him is to distribute the estate to all those who qualify for distribution. In determining who qualifies for what share he, as a lawyer, is to apply the customary law of the H Bahaya, and in case he runs into a difficulty he may turn to the High Court for directions. In such circumstances it seems to us that the learned counsel's contention that the Administrator - General has no locus standi meaning he has no right of audience, in the Primary Court is of little or no relevance because, as already noted, his appointment I to administer the estate does not entail any appearances in the Primary Court.

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KISANGA JJA, MAKAME JJA AND MFALILA JJA

It is quite apparent that Mr. Rutashobya was not aggrieved by the learned judge's direction that the Bahaya A customary law should be applied. Indeed this is what the learned Counsel himself had specifically asked for, and we are satisfied that for the reason given by the learned Judge as

referred to hereinbefore, that direction was perfectly sound. Mr. Rutashobya's real grievance is that the second appellant, and not the Administrator-General, should B administer the estate but, as we have sufficiently indicated, that issue was settled at the commencement of hearing the application before the High Court following Mr. Rutashobya's own conceding the same, and no grounds have been advanced for re-opening it on appeal. C

In the remaining ground of appeal Mr. Rutashobya asserts that the learned Judge erred in holding that the two children did not qualify for distribution and asks us to fault that direction. He did not seriously challenge the finding that the two children were illegitimate. Indeed he could not have done so because there was overwhelming evidence D to support that finding. Nor can there by any argument that under paragraph 43 of G.N.No.436 of 1963 read together with G.N. No. 605 of 1963 an illegitimate child cannot inherit from the father's side upon his dying intestate. However learned counsel urged us to say that the two children qualified for distribution on the ground that their deceased father had legal and moral obligation to maintain them, and that upon his death that obligation E continued and attached to his estate. In support of the submission counsel referred us to, inter alia, the provisions of section 129(1) of the Law of Marriage Act and two English decisions in the cases of In re Joslin [1941] Ch. F 200 and In re Makein [1955] Ch. 194.

We have given most anxious consideration to Mr. Rutashobya's submission, but we are unable to accede to it. His reference to section 129(1) of the Law of Marriage Act was undoubtedly influenced by the views expressed by the learned Judge about that provision. The learned Judge was comparing the present state of our law on intestate G succession with that of England and observed that the Tanzania law militates against illegitimate children. He noted that in England a number of statutory attempts have been made to try to alleviate this situation but that there have been no equivalent or corresponding efforts in Tanzania. It was in this context that he made reference to section 129 H (1) of the Law of Marriage Act and said that was about the only relevant statutory provision on the subject. That provision says:

129 (1) Save where an agreement or order of court otherwise provides, it shall be the duty of a man to maintain his infant I children,

A whether they are in his custody or the custody of any other persons, either by providing them with such accommodation, clothing, food and education as may be reasonable having regard to his means and station in life or by paying the cost thereof.

B The learned judge construed the word "children" appearing in the subsection to include illegitimate children in which case the deceased was duty bound to maintain the two illegitimate children, and, taking the queue from there, Mr. Rutashobya submitted that that duty continued and attached to the deceased's estate upon his dying intestate.

C Mr. Kapinga submitted that the learned Judge wrongly construed the word "children" to include illegitimate children. In his view the word "children" here excluded illegitimate children, and in support therefore referred to the meaning assigned to the word "child" in section 2 (1) of the Law of Marriage Act:

D 'child' includes an adopted child.

The learned Counsel contended that this shows the clear intention of the Legislature to exclude illegitimate children, E otherwise it would have expressly extended the meaning to such children like it did for adopted children. We think that Mr. Kapinga is right. The point he puts forward to support his argument seems quite strong, and we can only say a few words to amplify it The category of illegitimate children is not a negligible proportion of the country's F entire population. Nor can one really say that it is smaller numerically or in any other way lesser as compared to that of adopted children. In those circumstances the fact that parliament singled out adopted children for including in the meaning of "child" and said nothing about illegitimate children increasingly adds to the view that the scheme of the G Law of Marriage Act did not have illegitimate children in its contemplation.

But even if we were to assume for the sake of argument that the learned Judge was right, which in our view he was not, in interpreting the word "children" to include illegitimate children, we think that Mr. Rutashobya' s proposition H that the obligation which the deceased would have to his two illegitimate children would have attached to his estate upon his dying intestate is untenable. At any rate the learned Judge was not prepared to go that far. A perusal of his judgment makes it plain that he was prepared to go only as far as saying that such obligation of the deceased attached only during his life time. Mr. Rutashobya cited no authority for the proposition that such obligation would I survive the deceased and attach to his estate. The problem arose, though not

directly, in the English case of In re Harrington [1908] Ch.687 which we find to be persuasive. There it was held A that a putative father's obligation under a bastardy or affiliation order ends with his death, that such obligation is personal and the arrears under such an order are not recoverable against his estate. So that even if the word "children" in section 129 (1) of the Law of Marriage Act were to be enlarged to include illegitimate children and B hence to say that the deceased in the instant case had a duty under the law to maintain his two illegitimate children then on the strength of Harrington's case such duty or obligation being only personal, would not service him; it would have ended with his death. This, therefore appears to run contra to Mr. Rutashobya's thesis that such C obligation, even if it existed, would have attached to the deceased's estate.

We must say that we have much sympathy for Mr. Rutashobya's further view that the two illegitimate children should be held to qualify for distribution on the ground that their deceased father had a moral, as distinct from legal, D obligation to maintain them. However, we are regrettably of the view that in the present state of our law on the subject such a view is equally untenable. In the two cases (In re Joslin and In re Makein) cited by Mr. Rutashobya in support of his contention, the Court was concerned with the interpretation of the word "dependant" E appearing in section 1 (1) of the English Inheritance (Family Provision) Act 1938 to see if that word included illegitimate children so as to qualify them for a claim under the distribution of their deceased father's estate. The Court in In re Makein took the view that it would interpret

that word broadly to include an illegitimate child if such extended meaning was more consonant with the object of the Act, but in the particular case it came to the F conclusion that such extended meaning was unwarranted, with the result that an illegitimate son of the deceased did not qualify for distribution from the estate of his father who had died intestate.

But we could not quite see why Mr. Rutashobya cited this case to support the claim of the two children in the G instant case. Because here, unlike in the English case, the court is not called upon to construe or interpret the term "child" in any law governing distribution of the estate of a deceased person. As has been shown, the law governing distribution of the deceased's estate in the instant case is the Bahaya customary law as set out in G.N.No. 436 of H 1963 and applied to Bahaya vide G.N. No.605 of 1963. Paragraph 43 of the law expressly prohibits illegitimate children from inheriting from the father's side where the father died intestate. Thus the facts of the case fall squarely within that provision: The two children Reynold and Diana were obviously illegitimate and it is common ground that I their father died intestate. There is nothing vague,

A ambiguous, inconsistent or incomplete about paragraph 43 which having regard to the facts of the case, would call for interpretation. Giving the words of paragraph 43 their plain and natural meaning as applied to the facts of the case, it simply means that the two illegitimate children of the deceased cannot qualify for distribution. We could find B no room for reading or introducing moral considerations into the provision. In other words we could find no room for interpreting it, as urged by Counsel, so as to make the two illegitimate children qualify for distribution on the ground that their father had a moral obligation towards them. To do so would amount to substituting the Court's C own views for the express provision of the written law; that the courts cannot do.

It is perhaps appropriate to observe here that it seems advisable that in cases like this where a father feels that he owes a moral obligation towards his illegitimate child or children he should seek to honour that obligation by leaving D a will. That would go some way to alleviate the hardship often facing illegitimate children; it would make easier the task of the Courts in handling such cases when they came to Court and it would serve to put the conscience of the putative father at some ease. When all is said, we have to conclude the matter by stating that we could find no E ground for faulting the decision of the learned Judge who in our view was as sympathetic as anyone could have been with the plight of the two illegitimate children of the deceased. For the reasons we have given in this judgment we think that the Judge adequately dealt with, and properly directed himself on, the main issue before him and came to the right conclusion.

F We are satisfied that the appeal against that decision cannot succeed and it is accordingly dismissed with costs.

Appeal dismissed.

G

Court High Court of Tanzania - Dar es Salaam
Judge Kyando J

H 23 July 1990
Flynote
Administrative Law - Prerogative orders - Certiorari - Power of courts to review ministers' decisions or orders.
I Immigration Law - Deportation - Power of Minister to deport people - Whether minister has power to deport a citizen of Tanzania - Immigration Act, 1972, s. 24.
1990 TLR p81
KYANDO J
-Headnote
In an application for the order of certiorari the trial judge found that the respondent has acted ultra vires his A powers and quashed the respondent's order to deport the applicant.
Held: (i) If an administrative authority is acting within its jurisdiction or intra vires, and no appeal from it is B provided by statute, then it is immune from control by a court of law. But if it exceeds its power, or abuses them so as to exceed them, a court of law can quash its decision and declare it to be legally invalid;
(ii) the Immigration Act, 1972 does not empower the Minister to deport Tanzanian citizens from the country; C
(iii) it is upon the person who is the subject of an order of deportation to prove that he is a citizen of Tanzania.
Case Information
Order accordingly. D
El-Maamry, for applicant
Salula, for respondent
[zJDz]Judgment
Kyando, J.: The applicant in this matter Mohamedi Jama Yusuph, is a Somali by origin. He has filed this E application seeking from this court on order of certiorari to quash a deportation order made against him by the Ministry for Home Affairs on 10th April, 1989. The Minister's deportation order was made under s.24 of the Immigration Act, 1972, and it was served on the applicant on 19th April, 1989, after he was arrested on 17th F April, 1989.
The application is supported by the affidavit of the applicant himself. Mr. El-Maamry advocates for him in these proceedings and Mr. Salula, learned State Attorney, appears on behalf of the Minister, who is the respondent in the matter. G
The grounds upon which the application is made are that the applicant is a citizen of Tanzania and he cannot for that reason be deported from this country. He has stated that he is a holder of Tanzania passport No. 152603 which at the moment is in police hands. He also tendered, amongst other documents, birth certificates of himself and his H mother to show that they i.e. his mother and himself, were born in Tanzania and therefore that the applicant is a Tanzanian.

It is, of course, not an easy or simple matter to interfere with or, above all, quash a decision or order of a Minister. In making such decisions or orders, the Minister does so on behalf of government, headed by the President. But, as I we often say, justice must be done, even when
1990 TLR p82
KYANDO J
A heavens fall. And as was said by Lord Denning in the case of Congreve v Home Office [1976] A. C. 629 which involved revocation by the Home Secretary in England of a television licence:
B ... when the licensee has done nothing wrong at all, I do not think the Minister can lawfully revoke it without giving reasons, or for no good cause. If he should revoke it without giving cause, or for no good reasons, the courts can set aside his revocation and restore the licence. It would be a misuse of the power conferred on him by Parliament: and C these courts have the authority - and I would add, the duty-to correct a misuse of power by a Minister or his department, no matter how much he may resent it or warn us of the consequence if we do - Padfield v Minister of Agriculture, D Fisheries and Food [1968] AC 997 is proof of what I say. It shows that when a Minister is given discretion - and exercises it for reasons which are bad in law the courts can interfere so as to get him on to the right road. (Underlining supplied.)
E In sum, even though it is not an easy or simple matter to interfere with or quash a Minister's decision or order, courts have authority or power, even a duty, to quash them in proper and fitting cases. In doing so, of course, the courts are not acting as appellate bodies over the ministers' decisions or orders; they only investigate the legality or F otherwise of a decision or order and make determinations on these accordingly. In other words, this power of the courts to review or investigate is not based on the merit, but on the legality, of the Minister's decision or order. Prof. Wade says on the point in Administrative Law, Clarendon Press Oxford, 2nd Edn., p. 48:
G At the root of the matter is jurisdiction or, more simply power. The principle is that if an administrative authority is acting within its jurisdiction, or ultra vires, and no appeal from it is provided by statute, then it is immune from control by a H court of law. But if it exceeds its power, or abuses them so as to exceed them, a court of law can quash its decision and declare it to be legally invalid.
In this matter, the applicant is saying exactly what is stated in the passage above i.e. that the Minister for Home I Affairs acted ultra vires his powers when he ordered the deportation of the applicant, who is a Tanzanian. Did the Minister act ultra vires as contended? This is the fundamental
1990 TLR p83
KYANDO J
question for determination in this application. A
As already indicated above, the Minister's order to deport the applicant was made under s.24 of the Immigration Act, 1972. The section provides:
24 - (1) The Minister may make an order (hereinafter referred to as a deportation order) requiring - B

(a) any prohibited immigrant (other than a prohibited immigrant who is the holder of a valid pass or other authorisation issued to him under the provision of this Act); or

(b) any person (other than a citizen of Tanzania) convicted of an offence against any of the provisions of this Act any regulations made there under; or C

(c) any person (other than a citizen of Tanzania) whose continued presence in Tanzania is, in the opinion of the President undesirable, to be deported from, and remain out of Tanzania, either indefinitely or for the period specified in the order. D

Then it is provided under s. 25 of the Act that the burden of proof that a person who is the subject of an order of the deportation is a citizen of Tanzania lies upon him to prove that his is a citizen of Tanzania.

As stated at the beginning of this judgment, the applicant has indicated that he is a holder of a Tanzania passport to E prove that he is a Tanzanian. He has also tendered other documents to establish the fact of his citizenship of this country. The whole of the evidence he has tendered (to show that he is a Tanzanian) has not been challenged in any way. Indeed Mr. Salula did not even seek to reply to Mr. El-Maamry's submissions that the applicant is a citizen of F Tanzania and that the Minister acted wrongly in ordering his deportation. I am satisfied beyond doubt myself that the applicant is a citizen of Tanzania. Is the Minister then justified in ordering his deportation from this country? I unhesitatingly hold that he was not: he acted beyond his power in making the deportation order against the applicant G and acted plainly in breach of the provisions in the Immigration Act, 1972, which empower him to make deportation orders. These provisions do not empower him to deport Tanzanian citizens, like the applicant, from the country. His order of deportation against the applicant was therefore contrary to law, as shown above, and I have, H as I hereby do, to quash it, by certiorari, as prayed in the application filed by the applicant in this court.

Order accordingly. I

1990 TLR p84

A

[zRPz]EDWARD D. KAMBUGA AND ANOTHER v REPUBLIC 1990 TLR 84 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Makame JJA, Omar JJA and Mfalila JJA

1 August, 1990

Flynote

B Criminal Practice and Procedure - Bail - Offence committed under the Economic and Organized Crime Control Act, 1984 - Whether bail may be granted under s. 148(5) Criminal Procedure Act, 1985.

C Criminal Practice and Procedure - Bail - To foreigner - Whether foreigners to be treated differently.

-Headnote

Edward D. Kambuga and Wrong Teak Say, the appellants preferred this appeal after the High Court had granted D bail to Kambuga on near impossible conditions and refused to admit to bail Say on the ground that as foreigner he was likely to jump bail and thus fail to attend his trial. In arriving at this decision the judge relied on sections 29 and 35 of the Economic and Organized Crime Control Act 1984 under which the appellants were charged.

E Counsel for the appellants attacked the judge's ruling on the ground that the judge should have applied section 29 in exclusion of section 35 because the latter provision fetters the judge's powers to grant bail, and that it was improper for the judge to deny the second appellant bail on the ground that he was a foreigner.

F Held: (i) The learned judge was correct in using the power to grant bail under section 29 against the mandatory condition stipulated under section 35;

G (ii) as the procedure for granting bail is fully provided for in the Economic and Organized Crime Control Act, 1984 the procedure under the Criminal Procedure Act, 1985 did not apply.

(iii) while foreigners should not be treated differently in our courts merely because they are foreigners, we think H the High Court was entitled to take into account past experience when deciding finally whether or not to grant bail;

(iv) in such cases the court must take into consideration the seriousness of the case facing the foreigner, whether it is of such a nature that in the event of a conviction, the stipulated penalty is so severe as to encourage escape from justice.

Case Information

I Appeal dismissed.

1990 TLR p85

MAKAME JJA, OMAR JJA AND MFALILA JJA

Maira, for the appellants. A

[zJDz]Judgment

Mfalila, Makame and Omar, JJ.A.: This appeal is against the Ruling of the High Court at Dar es Salaam (Kyando, J.) granting bail to the first appellant Edward, D. Kambuga on near impossible conditions under sections 29 and 35 of the Economic and Organized Crime Control Act 1984 and refusing to admit to bail the second B appellant Wrong Teak Say. Currently both appellants are charged before the Resident Magistrate's court at Kisutu with two counts for offences under the Economic and Organized Crime Control Act, henceforth to be referred to as the Act, but have not yet been committed for trial. For this reason, and as the value of the property involved is more C than ten million shillings, the power to hear and grant bail to the appellants is vested only in the High Court. The High Court heard the appellants' application for bail on 26/3/90. At that hearing, it was contended on behalf of the appellants that the High Court should grant them bail under either section 148 (5) of the Criminal Procedure Act or D section 29 of the Act both of which give unfettered power to the High Court to grant bail. It was contended that section 35 of the Act which fetters the power to grant bail was inapplicable because that section only refers to "the court" which is the Economic Crimes Court. However the learned judge held that as the procedure for granting bail E is fully provided for in the Act, the procedure under the Criminal Procedure Act did not apply to the application before him. This reasoning and conclusions by

the learned judge is correct and is in line with the view taken by this court in Criminal Appeal No.13 of 1989 Juma Athuman & 5 Others v Republic. F

The learned judge also held that his power to grant bail under section 29 was fettered by section 35 and granted bail to the first appellant under conditions spelled out in the section and refused bail to the second appellant on the ground that as a foreigner he was more likely to flee the country and thus fail to attend his trial. Two grounds were G filed by Mr. Maira in support of the appeal against this decision. The first was in respect of the bail conditions imposed on the first appellant, that in an application for bail under section 29 (4) (d) of the Act, the discretion of the court is unfettered. The second ground related to the court's refusal to grant bail to the second appellant on the basis of his being a foreigner. H

At the hearing of the appeal, Mr. Maira argued in support of the first ground that the High Court should only have acted under section 29 of the Act without considering section 35 which fetters the discretion of the court because the conditions stipulated in that section are so onerous that they almost amount to a denial of bail and this cannot be I the law, bail being a right which should only be taken away in

A exceptional circumstances. Unfortunately for Mr. Maira, this happens to be the law, and as conceded by him, this would dispose of his argument. We agree with Mr. N.D who argued for the Republic that sections 29 and 35 serve different purposes. Section 29 provides the power to grant bail in economic cases whereas section 35 lays B down the extent to which that power should be exercised. The two sections should therefore be read and applied in tandem as it were. They cannot be separated as suggested by Mr. Maira. The learned judge was therefore correct in using the power to grant bail under section 29 against the mandatory conditions stipulated under section 35.

C On the second ground, Mr. Maira argued that there is no evidence that foreigners generally jump bail and that therefore the High Court took a wrong view of previous episodes as a justification for treating the second appellant differently.

D While we agree that foreigners should not be treated differently in our courts merely because they are foreigners, we think the High Court was entitled to take into account past experience when deciding finally whether or not to grant bail. In similar past episodes involving foreigners, no conditions including the impounding of passports proved sufficient to prevent the jumping of bail . However, in all such cases, the court, as the learned judge did in this case, E must take into consideration the seriousness of the case facing the foreigner, whether it is of such a nature that in the event of a conviction, the stipulated penalty is so severe as to encourage escape from justice. The learned judge F was of the view that this is such a case and there is no reason which we can use to disagree with this assessment.

Appeal dismissed.

G

[zRPz]VALERIAN SAIL v REPUBLIC 1990 TLR 86 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Ramadhani JJA and Mnzavas JJA

H 2 August, 1990
Flynote
Criminal Law - Provocation - Grave provocation - Mitigating factor in manslaughter cases.
-Headnote
I The appellant, Valerian Sail, was convicted on his own plea of guilty to manslaughter. He inflicted death to his brother-in-law at a drinking party
1990 TLR p87
KISANGA JJA, RAMADHANI JJA AND MNZAVAS JJA
when he intervened to restrain the deceased who had become troublesome and started to fight other people. A
In sentencing the appellant to 9 years imprisonment the learned trial judge stated that courts should not show lenience to persons who kill following excessive drinking. On appeal,
Held: (i) The deceased's behaviour obviously amounted to grave provocation which should have warranted the B exercise of leniency in sentencing the appellant for killing the deceased;
(ii) considering the mitigating factor and all the circumstances of the case, the sentence of 9 years, imprisonment was manifestly excessive. C
Case Information
Appeal partly allowed.
Mono for the respondent.
[zJDz]Judgment
Kisanga, Ramadhani and Mnzavas, JJ.A.: The appellant was convicted on his own plea of guilty to D manslaughter and sentenced to 9 years' imprisonment. He is now appealing against the sentence only.
The facts as adduced by the prosecution and admitted by the appellant were as follows: The appellant and the E deceased were brother-in-law. On the day of the incident they were at a pombe shop drinking and both of them became drunk. The deceased became troublesome and started to fight other people. The appellant intervened to restrain him but he turned on him and fought him as well, causing him to fall to the ground. Before the appellant could get up, the deceased pounced on him, whereupon the appellant gave him a kick in the stomach which sent F him to the ground leaving him injured. He was taken to hospital where he died of a ruptured spleen.
In passing the sentence the learned judge stated that the courts should not show leniency to persons who kill G following excessive drinking. But as the facts show, the appellant did not kill because of excessive drinking on his part. Although he was drunk, he behaved responsibly by intervening to restrain the deceased who was disturbing the peace. When he was thus performing this lawful and noble duty, the deceased took offence and attacked him. H That

obviously amounted to grave provocation which in our view should have warranted the exercise of leniency in sentencing the appellant for killing the deceased on the account.
The other factors pleaded in mitigation were that the appellant, in occasioning the death, administered only one kick on the deceased, and it may be added that he did not use any weapon. He readily I
1990 TLR p88
A pleaded guilty to the charge. He was remorseful and the deceased was his brother-in-law. He was a first offender and had been in remand since 1987.
At first Mr. J.D. Mono, the learned Senior State Attorney appearing for the Republic, took the view that although B the sentence was on the heavy side, it was not manifestly excessive so as to warrant interference by this Court. On reflection, however, he conceded and changed his mind; and like him, we are of the view that considering the mitigating factors as outlined above, and considering all the circumstances of the case, the sentence of 9 years' C imprisonment was manifestly excessive. In the circumstances we feel justified to interfere. That sentence is reduced to a term of imprisonment which will result into the appellant' s immediate release from prison unless he is held there on some other lawful ground. The appeal is allowed to that extent.
D Appeal allowed in part.
1990 TLR p88
E
[zRPz]FRANCIS TITUS MWACHA v REPUBLIC 1990 TLR 88 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Kisanga JJA, Ramadhani JJA and Mnzavas JJA

F 2 August, 1990
Flynote
Criminal Practice and Procedure - Sentencing - Manslaughter - Over reacting when chastising a child - Whether G sufficient basis for imposing a stiff sentence of 20 years imprisonment - Overreaction not immediate cause of injury leading to death.
-Headnote
The appellant was found guilty of manslaughter, convicted and sentenced to 20 years imprisonment. When H chastising a child the appellant overreacted by using fists and kicks. When running away the child fell and sustained a fatal head injury which led to his death. The appeal court considered whether in the circumstances the stiff sentence was warranted.
I Held: (i) Although in chastising the deceased the appellant overreacted by acting violently as evidenced by his use of fists and kicks, that could
1990 TLR p89
KISANGA JJA, RAMADHANI JJA AND MNZAVAS JJA

not be a sufficient basis for imposing such a stiff sentence of 20 years imprisonment especially considering that the A fists and kicks were not the direct and immediate cause of fatal head injury.

Case Information

Appeal allowed.

Kimomogoro for the respondent B

[zJDz]Judgment

Kisanga, Ramadhani and Mnzavas, JJ.A.: This appeal arises from the sentence of 20 years' imprisonment passed on the appellant following his conviction on the charge of manslaughter to which he had pleaded guilty. C

The appellant who is over 50 years of age is the father of the deceased, a boy aged only about 7 years. On the day of the incident the appellant returned home and found the deceased absent. In addition he was informed that deceased did not attend school either. When the deceased eventually came home the appellant chastised him by D beating him using sticks, fists and kicks. The deceased tried to run away from the onslaught, but as he did so he fell on a stone and sustained a serious head injury which led to his death. The appellant tried to retrieve the life of the deceased by treating him and then taking him to hospital but in vain. E

In meting out the sentence, the learned High Court Judge observed that what the appellant did was far beyond what was expected of a father, and that the attack on a child of such tender age was most inhuman. But the appellant's F act of chastising the child for playing truancy is something which the society approves of. The only valid criticism is that in so chastising the deceased, the appellant over-reacted by acting violently, as evidenced by his use of fists and kicks. We think that such criticism could not be a sufficient basis for imposing such a stiff sentence of 20 years' G imprisonment, especially considering that the fists and kicks were not the direct and immediate cause of the fatal head injury.

Mr. M.K. Kimomogoro, the learned advocate for respondent Republic took the view that the sentence was manifestly excessive, and we entirely agree. On that account we feel justified to interfere. Accordingly the H appellant's prison sentence of 20 years' imprisonment is reduced to one of 3 years' imprisonment. The appeal is therefore allowed to this limited extent.

Appeal allowed. I

1990 TLR p90

A

[zRPz]ELISA MOSSES MSAKI v YESAYA NGATEU MATEE 1990 TLR 90 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Mnzavas JA

4 August, 1990

Flynote

B Court of Appeal Rules - Application for leave to appeal to the Court of Appeal - Matters to be considered.

-Headnote

In an application for leave to appeal to the Court of Appeal the Court found that the matters on which the applicant C sought to base his appeal were new matters which were never at issue in the trial court nor raised at the High Court on appeal.

Held: The Court of Appeal will only look into matters which came up in the lower court and were decided; not on D matters which were not raised nor decided by either the trial court or the High Court on appeal.

Case Information

Leave refused.

E Desouza for appellant

Shayo for respondent.

[zJDz]Judgment

Mnzavas, J.A.: This is an application under rule 43 (b) and 44 of the Court of Appeal Rules and under Section 5 F (1) (c) of the Appellate Jurisdiction Act 1979; against the Ruling of Mwakibete, J. delivered on 31/8/89.

The dispute between the parties that has culminated to this application started in Moshi RM's Court as RM Civil Case No. 54/ 82. The dispute was over two houses and the trial court was required to decide whether the two G houses belonged to the applicant's father alone or whether they were jointly owned by the parties i.e. Elisa Mosses Msaki and Yesaya Ngateu Matee. After a full trial by the court of first instance the Court was satisfied, and came to the conclusion that the two disputed houses were jointly owned by the parties. Dissatisfied by the decision of the H district Court the applicant appealed to the High Court in High Court Civil Appeal No. 19 of 1985. The appeal was dismissed on 8/7/88, (Munuo, J.), and the decision of the trial Court affirmed.

I Before this Court Mr. Desouza, learned counsel for the applicant, argued in support of the application that both the trial court and the High Court erred in not deciding as to who between the parties was the

owner of the plot on which the houses are built. This failure, it was argued has caused a lot of difficulties as A ownership over the plots remains unresolved. It was submitted that the point regarding ownership of the plot was basic and that this Court should grant the application although it was not raised in the High Court. B

Held: (1) that the question of ownership of the plot on which the two houses are built was neither the issue in the RMs Court nor in the High Court.

(2) Secondly it was submitted that the application is out of time as, it was argued, it was in contravention of C the provisions of Rule 43 (b) of the Court of Appeal Rules which specifies that such application should be lodged within 14 days from the ruling of the High

Court. According to Mr. Shayo's argument the Ruling of the High Court was delivered on 10/8/89 and this application was filed on 13/9/89. D

I will first deal with the question of limitation. I agree with Mr. Shayo's submission that the ruling of the High Court is dated 10/8/89 but as rightly argued by Mr. Desouza the actual reading of the ruling to the parties was on 31/8/89. E That being the position the application to this Court for leave is timeous.

Coming to the argument as to whether there is in this case question of law calling for determination by this Court I have read the judgment of the trial court and I am satisfied that the issues between the parties in the RM's Court F was about ownership of the houses. Equally, in the appeal before the High Court the issued canvassed by the learned counsels for the parties was that of ownership of the houses and the question as to who should collect rent from the houses.

The question as to who was the owner of the plot on which the houses stood neither featured in the Court of first G instance nor in the High Court. This Court will only look into matters which came up in the lower Court and decided; not on which were not raised nor decided by neither the trial Court nor the High Court on appeal.

The decision of the Court of first instance regarding ownership of the houses was wholly based on matters of fact H involving credibility of the witnesses. That being the position I am far from being persuaded by Mr. Desouza's submission that the learned High Court Judge armed in coming to the conclusion that there were no points of law involved in this case calling for determination by this Court. I

A Accordingly this application for leave to appeal to this court fails. The respondent to have his costs.

Leave refused.

1990 TLR p92

B

[zRPz]MANAZO MANDUNDU AND ANOTHER v REPUBLIC. 1990 TLR 92 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Makame JJA, Omar JJA and Mfalila JJA

C 10 August, 1990

Flynote

Criminal law - Murder - Doctrine of recent possession - Whether can ground a conviction of murder.

D Criminal law - Murder - Malice aforethought - Killing as to effect stealing -Whether malice aforethought may be inferred.

-Headnote

The appellants, charged with and convicted of the offence of murder, appealed against both conviction and E sentence. The trial court based its conviction on the fact that the appellants were found in possession of stolen property a few hours after the watchman of a shop was killed. And, it was established that the property was stolen from the shop which the watchman was guarding. When arrested one of the appellants asked to be pardoned and F the other said matters were becoming serious and later cried at the CCM office.

Counsel for appellants charged on appeal that recent possession of stolen property could not alone, in the circumstances, ground a conviction of murder.

G Held: (i) The possession was very recent and that this fact cannot be ignored. The distance from the burgled shop to Chigugu is 28 miles and it takes 5 hours to travel by taking a short cut path or road. To be found at 10.00 am. the following day having already arrived at Chigugu means that there was no time lost by the possessors of H goods in running away from the scene of crime;

(ii) in the circumstances it was not wrong to conclude that the appellants were also responsible for killing the deceased, and because we are satisfied that the killing was so as to effect the stealing we are of the view that it was quite proper to infer malice aforethought;

I (iii) this is a fit case for invoking the doctrine of recent possession to support not only the shop breaking and theft but also the murder.

1990 TLR p93

MAKAME JJA, OMAR JJA AND MFALILA JJJ

Case Information

Appeal dismissed. A

Jadeja, for the appellants

Kamba, for the respondent.

[zJDz]Judgment

Omar, Makame and Mfalila, JJ.A.: The two appellants were charged with and convicted of the offence of B murder contrary to section 196 of the Penal Code.

The prosecution led evidence to the effect that on the night of 14th June, 1988 at Majengo "C" area in Nachingwea District the shop of P.W. 2 Abbas Ally Maji was burgled and its watchman was killed. The following day at about C 10 am. at Chigudu village the stolen goods were found in the possession of the two appellants who were trying to sell them to a shop owner P.W.3 Mohamed Bonamali. P.W.4 Rashidi Ally Rashidi was called from his house by his father-in-law P.W.3 to go and assist in this transaction. When P.W.4 talked to the two appellants and inspected the D goods he suspected that they were stolen articles and so he put the appellants under arrest. Eventually the two suspects were sent to CCM Office where the Village chairman opened the bag which contained the goods and inspected them. They were the following goods: 34 pairs of Khanga, 14 pairs of vitenge, cloth materials for gowns, E bicycle tubes and tyres, soap, underwear and shoes, also a bicycle on which the bag was put. From there the appellants were sent to Ndanda Police Station and thence to Nachingwea where they were charged with this offence. The owner of the burgled shop was called to the Police Station and he identified the things as some of his F shop goods stolen the previous night.

First appellant in his defence denied stealing any goods from any shop. He was at Chigugu bus stand with the second appellant who he had met at Ndomondo Village when he was arrested with him. First appellant stated G further that he was running from the police who were after him because of his escape from them while they were taking him to the Court on a charge of possessing stolen properly.

The second appellant Selemeni also denied any involvement in the goods claimed to be stolen. He explained his journey to Chigugu and how he met first appellant on the way, and that they were arrested when they were waiting H for the bus.

Mr. Jadeja, learned Counsel for the two appellants, quoted section 122 Evidence Act 1967 and compared it with section 114 Indian Evidence Act both sections being similar in expression and content:

The Court may infer the existence of any fact it thinks likely to I

1990 TLR p94

MAKAME JJA, OMAR JJA AND MFALILA JJJ

A have happened regard being had to the common course of natural events human conduct and public and private business, in their relation to the facts of the particular case.

B Mr. Jadeja said that we must look for other circumstances as well besides recent possession, it is better, he said to err on the side of acquittal than on the side of conviction. He ended by saying that it was difficult to feel that the appellants had been part of the breaking in and murder.

Mr. Kamba, learned State Attorney, supported the conviction of both appellants based on circumstantial evidence. C Both appellants were identified selling the stolen goods and their reaction to the arrest by P.W.4 had to be taken into account; one asked to be pardoned and the other, the second appellant Selemani, said matters were becoming D serious. Selemani was the one who later cried at the CCM Office.

Mr. Jadeja in his reply was emphatic that further material evidence was needed to uphold the conviction of murder. We have considered the arguments of Mr. Jadeja and are of the view that the possession was very recent, and that E this fact cannot be ignored. The distance from the burgled shop to Chigugu is 28 miles and it takes 5 houses to travel by taking a short cut path or road. To be found at 10 a.m. the following day having already arrived at Chigugu means that there was no time lost by the possessors of goods in running away from the scene of crime. The F section of the Evidence Act which was quoted to assist us in our deliberations states that the court may infer the existence of any fact which it may think likely to have happened but we have to take into account: the common course of natural events, human conduct and public and private business in their relation to the facts of this case G under consideration. Do the facts adduced by the prosecution in any way most accord with the conclusion that the two have committed both burglary and murder? The two appellants were found 28 miles away from the scene of burglary at about 10 a.m. just a few hours after the event and it is in evidence that it takes 5 hours to reach there on H foot. The bag with articles in it was put on a bicycle which was then easy to push.

Unlike Mr. Jadeja, we think that the decision in Rex v Bakari Abdulla (1949) 16 E.A.C.A. 84, relied on by Maina, J., was a sound one. Applied to our case, there are the circumstances we have already touched on, I including the extreme proximity in time, as well as the second appellant's inconsistence in Court and the Caution Statement; the second appellant's refraining from giving an explanation to P.W.4, and their

1990 TLR p95

MAKAME JJA, OMAR JJA AND MFALILA JJJ

joint failure to give village Chairman the version they later gave to the trial court. We are not convinced that, in the A circumstances it was wrong to conclude that the appellants were also responsible for killing the deceased, and because we are satisfied that the killing was so as to effect the stealing we are of the view that it was quite proper to infer malice aforethought. We have no quarrel with the decision in Sanwat Khan v State of Rajasthan A.I.R. B 1959 S.C. 54. We agree that no hard and fast rules can be drawn. In Khan's case, the Supreme Court faulted the High Court decision because the said High Court had rejected virtually all the bases the learned Sessions Judge had relied on and used only the solitary circumstance of the recovery of only two items the silver tashak and the gold C kanthi out of what must have been a large assortment of property belonging to the wealthy deceased from the boxes and almirahs.

Further we discern two other features distinguishing the Khan case from the present one: In Khan the appellant was D found with the property some eighteen days after the killing, unlike in our present case where the discovery was within a few hours. Secondly in Khan's case the two victims were killed in a temple where they were living and to which presumably any people could just come and go, so that conceivably the thieves might have acted after the E killing by other people. In our case the property was removed late at night, sometime after 11 p.m. going by P.W.2 Manji's evidence, and no one other than the deceased Andrea was supposed to be there.

We therefore agree with the learned trial judge that this is a fit case for invoking the doctrine of recent possession to support not only the shop breaking and theft but also the murder. We find the appellants properly convicted of F murder and we dismiss their appeals.

Appeal dismissed. G

1990 TLR p96

A

[zRPz]THE COOPER MOTOR CORPORATION LTD. v MOSHI/ ARUSHA OCCUPATIONAL HEALTH SERVICES 1990 TLR 96 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JJA, Ramadhani JJA and Mnzavas JJA

B 17 August, 1990

Flynote

Contract - Damages - Loss of use - When damages awardable.

Contract - Damages - General - Whether need be specifically pleaded.

C Contract - Damages - General - Quantum - Circumstances under which appellate court may disturb the quantum of general damages awarded by lower court.

-Headnote

The respondent' s motor vehicle was involved in an accident. The vehicle was driven and delivered to the appellant D for repair estimates. While there the engine of the vehicle was stolen. The respondent then towed away the vehicle and sued the appellant in the High Court which found that the appellant had breached their contract of bailment and held them liable for Shs. 5,000/= being the price of a new engine, Shs. 54,000/ = for loss of use of the vehicle from E the time the engine got lost to the time of filing the suit and shs 600,000/= general damages from 1980 to the date of judgment in 1988.

The Court of Appeal considered two issues: First, whether the award of shs. 54,000/= for loss of use was justified; F and second, whether general damages were specifically pleaded and the propriety of the quantum awarded.

Held: (i) As the respondent could not have used the vehicle even with its engine intact because of the accident G sustained earlier on he should not be allowed anything for loss of use;

(ii) general damages need not be specifically pleaded; they may be asked for by a mere statement or prayer of claim;

(iii) whether the assessment of damages be by a judge or a jury, the appellate court is not justified in substituting H a figure of its own for that awarded below simply because it would have awarded a different figure if it had tried the case ... Before the appellate court can properly intervene, it must be satisfied either that the judge, in assessing the damages, applied a wrong principle of law (as taking into account some irrelevant factor or leaving out of I account some relevant one); or short of this, that the amount awarded is so inordinately low or so

inordinately high that it must be a wholly erroneous estimate of the damage; A

(iv) in addition to the trial judge taking into account an irrelevant factor (considering the period covered to be up to the time of judgment instead of up to the time the vehicle was towed away), considering matters of which there was no evidence, it is our opinion that the amount awarded is inordinately high. B

Case Information

Appeal allowed in part.

Ngalo, for the appellant

Shayo, for the respondent. C

[zJDz]Judgment

Ramadhani, Kisanga and Mnzavas, JJ.A.: The appellant, the Cooper Motor Corporation Ltd., is a limited liability Company, specialist in Volkswagen Vehicles, among others, with a branch in Moshi. The respondent, D Moshi/Arusha Occupational Health Services, is also a limited liability company based in Moshi too. A Volkswagen Combi bus of the respondent with registration number TZ 44059 was involved in an accident on 27/5/1980 and consequently was

driven and delivered to the appellant on 24th July, 1980 for repair estimates after it had stayed E for almost two months at another garage. On or about 17th November, 1980 the appellant informed the respondent that the engine of the said vehicle had been stolen while in their (appellant's) possession and custody. The respondent after some communication with the appellant filed a suit on 25th April, 1981 and on 10th March, 1982 F towed the bus away from the premises of the appellant. The High Court of Tanzania at Arusha (MWAKIBETE, J.) found that the appellant had breached their contact of bailment with the respondent. He held them liable for Shs.45,000/= being the price of a new engine; Shs.54,000/= for loss of use of the vehicle from the time the engine got lost to the time of filing the suit and Shs.600,000/= general damages from 1980 to the date of judgment in G 1988. This appeal is from that judgment.

At the start of hearing this appeal Mr. Ngalo, learned decease for the appellant, left no stone unturned and no outlet uncooked endeavouring to persuade us to find that there was no contract of bailment at all. However, due to the H probings from the bench, he conceded, rightly too in our opinion, that there was a contract. He also conceded to the award of 45,000/=. Thus he abandoned three out of his seven grounds of appeal. The remaining four grounds deal with damages and conveniently settle down to two issues. First, was the payment of Shs.54,000/= for loss of I

A use justified? Second, were general damages specifically pleaded and, in any case, was the quantum awarded proper?

Regarding the loss of use Mr. Ngalo submitted that the vehicle was damaged and was therefore not usable. The respondents had to incur these expenses in any case even if there was no breach of the contract of bailment. Mr. B Shayo learned advocate for the respondents, repeated that the respondent had to hire transport and so must be recouped their expenses from the time the engine disappeared to the time of filing the suit.

Admittedly as this vehicle was off the road alternative transport had to be hired as evidenced by receipts (Exh.P5). C But this was not because of the theft of the engine on 17/11/80. On the contrary this was a result of the accident that damaged the bus on 27/5/80. We ask why damages are sought for the period from the date of the theft of the D engine and not before that. Hulsbury's Laws of England 3rd Ed. Vol. II p. 233 paragraph 400 says:

The fundamental principle by which the Courts are guided in awarding damages is 'restitutio in integrum'. By this is meant that the law will endeavour, so far as money can do it, to place the injured person in the same situation as if the E Contract had been performed....

In the instance case of a contract of bailment, the bailee i.e the appellant had the duty under sec. 103 of the Law of F Contract Ordinance (Cap.433) to:

... take as much care of the goods bailed to him as a man of ordinary prudence would, under similar circumstances, take G of his own goods of the same bulk, quality and value as the goods bailed: (The proviso is not relevant).

"Restitutio in intergrum" demands that the value of the engine in terms of money be paid. As the respondent could not have used the vehicle even with its engine intact because of the accident

sustained earlier on, he should H not be allowed anything for loss of use. So shs. 54,000/= is disallowed.

As for the general damages Mr. Ngalo made three submissions. First, he said that these are required to be specifically pleaded in the plaint and not merely being mentioned in the prayer. He cited Bullen & Lake and I Jacob's Precedents of Pleadings 12th Ed. at p. 379 and Perestrello Companhia Limitada v United Paint Co. Ltd.

[1969] l . W.L.R 570. Second, he submitted that even if there is a finding for general damages the period over A which they are granted should be from the time of the theft of the engine to the time the vehicle was taken away by the respondents and not to the time of the judgment of the High Court. This was conceded by Mr. Shayo. Lastly, B he argued that there was no evidence on which an assessment of general damages to the tune of the shs.600,000/= could have been made. He pointed out that the award is out of proportion to shs. 45,000/=, the value of the stolen engine.

Mr. Shayo, on the other hand, drew the attention of the court to the fact that the passage cited by Mr. Ngalo in C Bullen and Lake refer to special and liquidated damages. General damages, he said, are provided for in another passage which state that they are not required to be specifically pleaded. In any case, Mr. Shayo argued, general damages have been pleaded in paragraph 9 of the plaint and then in the prayer in paragraph 11. As to the third point. Mr. Shayo agreed that there was no evidence to support the comments of the learned judge in awarding the D general damages. However, he pointed out that they are not excessive and that an appellant court should only disturb an award if it has been granted on a wrong principle (Davies v Powell [1942] 1 All E.R.657 at 664/5). Moreover, Mr. Shayo submitted, the lower Court was entitled to take devaluation into account National Bank of E Commerce v Parma Shoe Company - Civil Appeal No. 11/88 of CAT - unreported).

The first issue we have to consider is whether or not general damages require to be specifically pleaded.

We agree with Mr. Shayo that the passage he had cited in Bullen and Lake p.379 is the relevant one and reads as F follows:

In claim for general damages, particulars will not be needed of the quantum of damages claimed (see London and Northern Bank Ltd. v George Newness Ltd. (1900) 16 T.L.R. 433, C.A.). On the other hand, the mere statement or prayer G of a claim for 'damages' will not support a claim for any particular injury or loss other than general damages (see Perestrello Companhia Limitada v United Paint Co. Ltd., [1969] 1 W.L.R. 570).

It is abundantly clear from the above quoted passage that only general damages can be asked for by "a mere H statement or prayer of a claim" and this is what has been done in this case.

The case of Perestrello v United Paint Co. Ltd., which has been referred to in the above passage and also cited to us by Mr. Ngalo I

A provides at page 579 thus:

There is plenty of authority for the proposition that a plaintiff need not plead general damage...

B The learned judge, then went on the quote Lord Dunedin in Admiralty commissioners v S.S. Susquehann [1926] A.C. 655 at p. 661 who said:

C If damage be general, then it must be averred that such damage has been suffered, but the quantification of such damage is a jury question.

The learned judge after quoting the above passage gave an amplification:

D What amounts to a sufficient averment for this purpose will depend on the facts of the particular case. . .

We think on the facts of the appeal before us, which we have concisely narrated at the beginning, the word E 'inconvenience' in paragraph 9 of the plaint:

As a result of the loss of the engine the plaintiff has been deprived the use of the motor vehicle and has been put to considerable expense and inconvenience.

F and the prayer (in paragraph 11 (b) for a "judgment against the defendants for general damages as the honourable Court may deem proper" is sufficient averment.

G The second issue now is should we or should we not disturb the quantum of general damages. Mr. Shayo referred us to Davies v Powell [1942] . That decision of the court of appeal was approved by the privy Council in Nance v British Columbia Electric Raily Co. Ltd. [1951] A.C. 601 at p. 613 thus:

H ... Whether the assessment of damages be by a judge or a jury, the appellate Court is not justified in substituting a figure of its own for that awarded below simply because it would have awarded a different figure if it had tried the case... before the appellants court can properly intervene, it must be satisfied either that the judge, in assessing the damages, I applied a wrong principle of law (as taking into account some irrelevant factor or leaving out

of account some relevant one); or, short of this that the amount awarded is so inordinately low or so inordinately high that A it must be a wholly erroneous estimate of the damage ...

That position was adopted by the Court of Appeal for Eastern Africa in Henry Hiday Illanga v Manyama Manyoka [1961] E.A. 705 at 713. We are of the opinion that the principles stated are correct. . How applying the B principles to the present case we are of the opinion that the learned judge took into account an irrelevant factor when he considered the period covered to be up to the time of judgment instead of up the time the vehicle was towed away which Mr. Shayo, as already said conceded to be the proper one. Then also the learned judge C considered, albeit obiter, matters of which there was not evidence which again Mr. Shayo concerned. The learned judge said:

And in assessing general damages I take into account the circumstances under which the engine disappeared and the D fact that the motor vehicle in question has consequently been lying idle all these years since 1980, to date, to the great inconvenience of the plaintiff company. Customers ought not to be unduly scared at the prospects of losing or having their motor

vehicles cannibalised if left at the garage for purposes for which the garages are intended. I would award E shs.600,000/= in general damages ...

It is also our well considered opinion that the amount awarded is so "inordinately high". We agree with Mr. Ngalo that the award of shs. 600,000/= general damages does not bear any relationship to shs. 45,000/=, the value of the F stolen engine.

Mr. Shayo argued that devaluation was a factor to have been considered. We have never been able to lay our hands on the case he has cited. Mr. Ngalo claims that decision was alright as it pertained to the repayment of G money. Be that as it may, that ought to have been an argument to seek the enhancement of monetary value of the lost engine. However, it was not advanced then. The amount awarded even now with the devaluation is "inordinately high". We therefore think that an award of shs.150,000/= will be the justice of the case. H

Thus we uphold the award of shs 45,000/= being the value of the lost engine, we strike out the award of shs. 54,000/= for loss of use and we reduce general damages to shs.150,000/=. As the respondent has substantially won the appeal we allow him to have his full costs both here and in the court below. I

Appeal allowed in part.

1990 TLR p102

A

[zRPz]ESSO TANZANIA LIMITED v DEUSDEDIT RWEBANDIZA KAIJAGE 1990 TLR 102 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam

Judge Nyalali CJ, Makame JJA, Kisanga JJA, Omari JJA, Ramadhani JJA, Mnzavas JJA and Mfalila JJA

B 22 August, 1990

Flynote

Civil Practice and Procedure - Res judicata - Full bench of the Court of Appeal.

-Headnote

C In a hearing of a preliminary objection the justice of appeal found that the ground of appeal on the jurisdiction of the High Court to entertain the case previously before it had been finally disposed of and became res judicata. He upheld the preliminary objection, ordered the striking of that ground and ruled that the appeal should proceed D before an ordinary bench on the remaining ground without the need to convene a full bench of the Court of Appeal.

Held: (i) The question of jurisdiction had already been finally decided by the Court of Appeal during a previous E appeal on the point, the learned High Court judge could not reopen the matter by making it one of the issues to be decided by him. The question was and is res judicata;

(ii) As the question of jurisdiction was the basis for convening the fill bench of this court, this ruling renders such F need unnecessary as the rest of the grounds can be decided by an ordinary bench.

Case Information
Order accordingly.
Shivji, for the appellant
G Uzanda, for the respondent
[zJDz]Judgment
Mfalila, J.A., Nyalali, C.J., Makame, Kisanga, Omar, Ramadhani, and Mnzavas, JJ.A.: In this appeal, the H appellant company is challenging the decision of the High Court in a judgment in which its dismissal of the respondent from employment was declared invalid.
A total of six grounds of appeal were filed in the amended Memorandum of appeal. However Prof. Shivji learned I counsel for the respondent filed a preliminary objection against ground No.1 "on the ground and for reasons that the issues and matter raised therein are res judicata". At the hearing, Prof. Shivji submitted that the question of

jurisdiction as raised in ground no. 1 was finally decided by this Court on appeal from the decision of the High A Court in Civil Appeal No.10 of 1982 and that therefore it cannot be reopened in the same Court in the same suit between the same parties. He added that it was because of this earlier decision that the question of jurisdiction was not even raised at the subsequent trial in the High Court. B
In reply, Mr. Uzanda submitted with commendable boldness that the learned High Court judge should have included the issue of jurisdiction as a question for this determination, because it was specifically raised in the Written Statement of Defence and that his failure to do so rendered his judgment bad in law. As the learned judge failed to C raise this point, he said, the issue is not res judicata.
Having considered the matter, we are of the view Prof. Shivji is correct. It is true that the question of the Court's jurisdiction was raised in the Written Statement of Defence and therefore was one of the issues raised in the pleading, but it was also raised specifically as a preliminary point at the start of the hearing on the basis that if D successful, it would completely dispose of the suit. Indeed the outcome was successful and the suit was completely disposed of by its being dismissed. However, the respondent successfully appealed to this court which held that the High Court had jurisdiction to try the case. This court ordered the trial to proceed. When therefore the trial opened E before Bahati, J. on 14/4/88, the question of jurisdiction had already been finally decided by this Court, the learned High Court judge could not reopen the matter by making it one of the issues to be decided by him. The question was and is res judicata. F
For these reasons we uphold Prof. Shivji's preliminary objection and order that ground No. 1 be struck off.
As the question of jurisdiction was the basis for convening the full bench of the court, this ruling renders such need unnecessary as the rest of the grounds can be decided by the ordinary bench. G

Accordingly we adjourn the proceedings to the later sitting of this court before an ordinary bench.
Order accordingly. H
1990 TLR p104
A
[zRPz]ALFANI MLAPONI AND ANOTHER v REPUBLIC 1990 TLR 104 (HC)

Court High Court of Tanzania - Mtwara
Judge Maina J

B 22 August, 1990
Flynote
Criminal Practice and Procedure -Appeal - Conviction based on a plea of guilty - Whether appealable - S. 360 Criminal Procedure Act 1985.
C Criminal Practice and Procedure - Mitigation - First offenders - Mitigating factor.
-Headnote
The Appellants, Alfani Mlaponi and Said Laki Saidi were charged with, and convicted on their own pleas of guilty D of unlawful possession of two gallons and two bottles of Moshi c/s 30 of the Moshi (Manufacture and Distillation) Act, 1966. They were each sentenced to 18 months imprisonment although they were first offenders.
Subsequently they appealed against the conviction, alleging further that they were beaten up, hence, their own pleas of guilty.
E Held: (i) There can be no appeal against conviction on a plea of guilty;
(ii) the pleas were clearly unequivocal and the conviction was inevitable;
(iii) where the quantity of liquor found with the offender is such that he must have been a distributor, a prison F sentence would seem to be correct, even for a first offender.
Case Information
Appeals dismissed.
G Hyera, for the respondent.
[zJDz]Judgment
Maina J.: The two appellants were jointly charged with, and convicted of unlawful possession of "Moshi" contrary to section 30 of the Moshi (Manufacture and Distillation) Act, No.62 of 1966. They were each sentenced to H eighteen months imprisonment. They were convicted on their own pleas of guilty. The appeals are against conviction.
As Mr. Hyera, learned State attorney, rightly pointed out, there can be no appeal against conviction on a plea of guilty. (See section 360 of the Criminal Procedure Act, 1985.) The question here is whether the pleas were I unequivocal. If they were, then there can be no appeal against the convictions. When the charge was read over to the
1990 TLR p105

appellants, each one of then admitted and said "It is true". Then the facts were read showing that they were found in A possession of fifteen litres of the illicit local liquor known as "Moshi". This comprised two gallons and two bottles. The appellants admitted the facts, and they were accordingly convicted and sentenced. They now say that they were beaten up and that they were not found with moshi. That is an afterthought. When they appeared before the B trial court, the charge was read over and explained to them and they admitted the charge and the facts which were later outlined by the prosecution. The pleas were clearly unequivocal and the conviction was inevitable.

As regards sentence while it is true that both appellants are first offenders, the quantity of moshi found in their C possession was such that it must have been intended for sale and not personal consumption. As Georges, C.J. said in the case of Hadija do Omari v R. [1970] HCD n. 158:

Where the quantity of liquor found with the offender is such that they must have been a distributor, a prison sentence D would seem to be correct, even for a first offender.

With respect, I agree with the learned Chief Justice. It must also be pointed out that under the old Ordinance, the E maximum penalty was a fine of Shs. 1,000/= or three months imprisonment. But the present legislation provides a maximum of five years imprisonment for the offence. This reflects the seriousness with which Parliament views this type of offence. I agree with the trial magistrate that a sentence of imprisonment was appropriate, in the F circumstances. The sentences are confirmed.

Appeal dismissed. G

1990 TLR p103

H

[zRPz]SATEN KASOLOLONGO AND OTHERS v MCHELEKILALA AND OTHERS 1990 TLR 105 (CA)

Court Court of Appeal of Tanzania - Mbeya

Judge Makame JJA, Omar JJA and Mnzavas JJA

1 September, 1990

Flynote

Civil Practice and Procedure - Compensation - Nominal - When awardable. I

1990 TLR p106

MAKAME JJA, OMAR JJA AND MNZAVAS JJA

-Headnote

A One of the respondents was assaulted by the appellants. The trial judge was satisfied that assault was established but that the extent thereof was disbelieved and awarded only shs. 300/=. On appeal challenging the quantum of compensation.

B Held: Whereas there was evidence that Kusenza was roughed up it is clear that the alleged extent of assault was disbelieved by the learned trial judge. Not only was there no medical

evidence, documentary or oral, of the injury, there was also no convincing explanation as to why he did not make a report at the Police Station.

Case Information

C Order accordingly.

Bateyunga for the respondent

[zJDz]Judgment

D Makame, Omar and Mnzavas, JJ.A.: The appellants in this case were sued by the four respondents, all brothers, for damages in connection with some head of cattle the respondents alleged had been taken away without their consent. The outcome was that the High Court (Mroso, J.) found the first three appellants liable to the second E plaintiff Misele Kilala now the second respondent for shs. 60,000/= for the six head of cattle found to have been seized from him wrongly, and shs. 300/= to the respondent Kuzenza Kilala for the assault he was found to have been subjected to. The appellants have come to us protesting against the High Court decision. On their part the F unsuccessful respondents/plaintiffs have cross appealed.

At the outset we wish to make an observation regarding two aspects of this appeal. The first is, as we told the first three appellants, we did not think they should have included their Kilyamatundu Village Council as one of the G appellants because the Council was not found to be vicariously liable. We accordingly struck off the fourth appellant. Secondly, on the evidence, if the first three appellants were properly held to be liable we think that the decision that the Village council was not vicariously liable is open to argument: the fourth defendant, the Council, admitted at least the Village Treasurer Maiko Mwamwenda was its employee; and is also clear from the evidence H of Bonaventura or Boniface Kipesha, the second appellant and the other two appellants held offices also in the Village council as distinct from their C.C.M. Branch posts. We do not however propose to say any more about this I because we see that although Mr. Bateyunga learned advocate for the

respondents/cross-appellants had made this his fourth ground of cross appeal he informed us he was abandoning A the matter.

We naturally start with the appeal. The learned trial judge believed that Kuzonza was assaulted by the appellants and we think that the evidence of Kuzenza himself and Michangu (Maiko) Kilala between them established the B allegation. The learned trial judge awarded only shs. 300/=, which was clearly nominal, merely, but we cannot fault him on this. Whereas there was evidence that Kuzenza was roughed up it is clear that the alleged extent of assault was disbelieved by the learned trial judge. Not only was there no medical evidence, documentary or oral proof of the injury, there was also no convincing explanation as to why he did not make a report at Kamsamba Police C Station. Kipasha said the Police Station was only half an hour away and we see that he was not cross-examined on this. We would not be justified to disturb the award of shs. 300/=. We accordingly dismiss the appeal on the first ground and by the same reasoning we are unable to entertain the fifth ground of cross-appeal in which Mr. D Bateyunga sought enhancement of the award.

In the second ground of appeal the appellants challenge the finding that of the cattle taken from the respondents six had to be compensated for. The learned trial judge carefully sifted the evidence and got his arithmetic right. He explained that the appellants took from the Kilala brothers a total of twenty four head of cattle, Less the eight he E found legitimately taken in connection with Village lorry project and less again the ten beasts restored to the respondents by the Police, the balance was six animals on which he placed the price of shs. 60,000/=. We dismiss this second ground of appeal accordingly. F

Regarding the cross-appeal, because as aforesaid Grounds 3,4 and 6 were dropped and as we have already disposed of Ground 5, only Ground 1 and 2 remain to be considered and those are of course closely interrelated.

Mr. Bateyunga has urged that the third and fourth clients were not residents of Kilyamatundu Village and so they G should not have been required to contribute for the acquisition of a lorry for the village, alternatively they were not party to the resolution. On our view it is rather late in the day for the cross appellants to canvass the contention that they were not party to the resolution even if they were villagers. Their stand throughout was farther than that - it was H that they did not belong to Kilyamatundu Village at all. On the balance of probabilities we are satisfied that the assertion that Machangu (Maiko) Kilala and his younger brother Kuzenza were resident at Kilyamatundu was proved. It was unconvincing to say that although they used to take their animals to Kilyamatundu Village for grazing I they did not know that during the alleged

A encounter with the cross-respondents they were on Kilyamatundu territory. Their contradictions as to the number of animals they had with them at the material time - now 400 now 900; the number of marauders - sixty or ten people, and Brother Mchele's denial of their contention that they had obtained a permit to drive the cattle to Moleza village all go to indicate that the two cross-appellants were untruthful.

B With respect to Mr. Bateyunga, we do not think it is quite correct to say that the learned trial judge found the contributions were collected by force. He believed that the legality and propriety of the resolutions that the contributions were made were not really challenged, only that when the two cross-appellants put up resistance, C unreasonably in our view, considering the evidence, the unreasonable resistance was overcome. This, per se, did not make the collection of the contributions unlawful.

D We dismiss both grounds in the cross appeal.

We order each side to bear its own costs for the appeal and cross appeal. For the avoidance of possible doubt, this order does not effect the High Court order as to costs.

E Order accordingly.

1990 TLR p108

F

[zRPz]ALHAJI ABDALLAH TALIB v ESHAKWE NDOTO KIWENI MUSHI 1990 TLR 108 (CA)

Court Court of Appeal of Tanzania - Mbeya

Judge Kisanga JJA, Ramadhani JJA and Mnzavas JJA

G 23 August, 1990

Flynote

Civil Practice and Procedure - Court of Appeal Rules - Notice of appeal filed - Subsequently notice of motion seeking H leave to appeal out of time filed under rule 8 of the Court of Appeal Rules - Whether notice of motion properly filed.

Civil Practice and Procedure - Court of Appeal Rules - Notice of motion seeking leave to appeal out of time filed - Counter I notice of motion seeking to have the appeal struck out for want of leave to appeal out of time subsequently filed - Whether proper.

1990 TLR p109

KISANGA JJA, RAMADHANI AND MNZAVAS JJA

Civil Practice and Procedure - Court of Appeal Rules - Application to lodge appeal out of time - Sufficient reason for the A delay must be given.

-Headnote

The appellant lost a case in the High Court in which he claimed for damages for breach of a building contract. The B appellant decided to appeal and gave notice of appeal within prescribed time limit. He then delayed in lodging the appeal until the prescribed 60 days time limit had expired. So the appeal was lodged accompanied with an application under Rule 8 of the Court of Appeal Rules, for extension of time to lodge the appeal. The respondent, C with the knowledge of the application for extension of time, proceeded to file a counter application seeking to have the appeal struck out on the ground that no order for extension of time to institute the appeal was obtained. The Court considered the propriety of the counter application and filing the application for extension of time under Rule D 8. The Court also considered whether there was a sufficient reason in this case to grant the application.

Held: (i) It was improper for the respondents, with the notice of the application of extension of time, to react by filing a counter notice of motion seeking to have the appeal struck out for want of leave to lodge it out of time, the E very shortfall which the appellant's application sought to remedy;

(ii) if the respondent wanted to challenge the application, the proper thing to do was to file a counter affidavit in order not only to avoid confusion and multiplicity of actions but also make the proceedings neat and orderly; F

(iii) where the appellant failed to lodge his appeal within 60 days after filing his notice of appeal as required under Rule 83 (i) of the Court of Appeal Rules he can apply to the court under Rule 8 for leave to do so out of time. And this is precisely what the appellant has done; G

(iv) the delay in lodging the appeal caused by the appellants absence from the country at one time and also his advocates indisposition and temporary absence from the country at another time after the appellant himself had returned into the country in the instances of this case do not constitute sufficient reason under Rule 8 of the Court of Appeal Rules. H

Case Information

Application dismissed.
Lobulu, for the appellant/applicant
Kinabo, for the respondent I
1990 TLR p110
KISANGA JJA, RAMADHANI AND MNZAVAS JJA
[zJDz]Judgment
A Kisanga, Ramadhani and Mnzavas, JJ.A.: There is before us an appeal from the decision of the High Court (Munuo, J. (Mrs.)) dismissing the appellant's claim for damages for breach of a building contract. The appeal was accompanied with an application for extension of time to lodge the appeal, as the appeal had not been lodged within B 60 days of giving the notice of appeal as required by rule 83 (1) of the court of appeal Rules. After the application was filed the respondent, with the knowledge of it, proceeded to file a counter application seeking to have the appeal struck out "on the ground that no order for extension of time to institute the appeal was obtained". When the C appeal was called on, we had to deal with this application first. Mr. B. Lobulu appeared for the appellant while Mr. F.S. Kinabo was for the respondent.
In the course of hearing the applications, Mr. Lobulu submitted that when he filed the notice of motion seeking leave D to lodge the appeal out of time, it was improper for the other side, with the notice of such application, to react by filing a counter notice of motion seeking to have the appeal struck our for want of leave to lodge it out of time, the very short fall which the appellant's application sought to remedy. We think that Mr. Lobulu is right. The course E adopted by the respondent is prone to lead to unnecessary multiplicity of actions and confusion. As suggested by the learned counsel, if the respondent wished to challenge the application, the proper thing to do here was to file a counter affidavit. That would not only avoid confusion and multiplicity of actions, but would also make the proceedings neat and orderly.
F We shall now turn to the merits of the appellant's application. But the appellant and his advocate each filed an affidavit in support of the application. The main points as disclosed by the two affidavits are as follows: The judgment being appealed from was given on 20.10.87. The request for documents for the preparation of the record G was made on 29.10.87 and the said documents were received by the appellant's counsel on 23.9.89. Mr. Lobulu contends that on receiving the documents he could not proceed to lodge the appeal as he was unable to obtain instructions from the appellant who had left for Yemen and Saudi Arabia on 24.3 .89 for purposes of medical H treatment, among other things, and did not return until 11.3.90. The appellant went to see him on 23.3.90 only to find the he (Mr. Lobulu) had travelled out of the country. Mr. Lobulu was back in his office on 9.4.90 and that is when he advised the appellant to pay the fees in Court for the lodging of the appeal. That is to say the appellants filed the appeal over six months after his advocate head received the documents for preparation of record of the I appeal.
1990 TLR p111
KISANGA JJA, RAMADHANI AND MNZAVAS JJA
Mr. Lobulu's notice of motion for the extension of time is brought under rule 8 of the court appeal rules. That rule A says:

The Court may for sufficient reason extend the time limited by those Rule or by any decision of the court or of the High Court for the doing of any act authorized or required by these rules, whether before or after the doing of the act, and any B reference in these Rules to any such time shall be construed as a reference to that time as so extended.

Mr. Kinabo, opposing the application, submitted that the application was wrongly brought under rule 8 of the Rules. C He argued that rule 8 was applicable only where there was an appeal before the Court but in his view there was no appeal here because the appellant had obtained no leave to institute it. He strenuously contended that the appellant's purported appeal was misconceived and incompetent and should therefore be struck out. In support of D the contention he referred to the ruling of this Court in the case of Arusha International Conference Centre v Damas Augustine Ndemansi Kavishe. Civil appeal No. 34 or 1988 (Unreported). That was the substance of his counter notice of motion.

It appears, however, that the submission by the learned counsel is with due respect, somewhat misguided. In the E context of the present case rule 8 as reproduced above is saying that if the appellant failed to lodge his appeal within 60 days after filing his notice of appeal, as required under rule 83 (1), he can apply to the court for leave to do so F out of time. And this is precisely what the appellant has done. He failed to lodge the appeal within the time limit of 60 days, and he is now asking the court to enlarge that time. Mr. Kinabo's submission that the appeal is incompetent because no leave was obtained to institute it is necessarily self defeating because it ignores or G overlooks the fact that there is already before the court the appellant's application for leave to lodge that appeal out of time.

Nor is it correct to argue, as Mr. Kinabo did, that there is no appeal before the Court. The record shows that the appeal was lodged in the sub-registry at Arusha on 12.4.90. That, admittedly, did not institute the appeal. But since H the appellant had given notice of appeal within the prescribed time limit then the process of appeal had commenced. That is to say, there was a proceeding before the court, and the present application is made in pursuance therefore. We should add, for the sake of completeness, that if the present application for leave is I granted, such leave would operate retrospectively and the appeal would be deemed

A to have been duly lodged on 12.4.90 in which case it would not be necessary to lodge it a second time.

Kavishe's case cited by Mr. Kinabo is easily distinguishable from the present one. That case dealt with a situation B where the intended appeal was lodged within the prescribed time but the appellant had failed to extract the decree being appealed against and to make it part of the record. Following a series of previous decisions of this court and of its predecessor, we held that the appeal was incompetent and we struck it out accordingly. But in the instant case we are at a different stage of the appeal. We are at the stage where the appeal is not yet lodged; the time for C lodging it has run out and the appellant is seeking leave to lodge it out of time. At this stage the question whether or not the decree has been extracted, and if not what are the consequences, does not fall for consideration yet. It does so only after the leave is granted, if at

all, and the appeal is duly lodged. We are therefore satisfied that the D application was properly bought under rule 8 of the Court of Appeal Rules.

Mr. Kinabo's other ground for resisting the application was that no sufficient reason, in terms of rule 8, is shown for granting extension of time. There is merit in this submission. The appellant's main contention was that the delay in E lodging the appeal was caused by his absence from the country at one time, and also by his advocate's indisposition and temporary absence from the county at another time after he himself had returned into the country. The claim, however, is entirely without merit. The appellant travelled to Yemen and Saudi Arabia for the purposes of medical treatment, among other things. But he was not hospitalized there. His medical cards show that he attended only as F an outpatient, reporting at the hospital at intervals of up to four months, which means that he was not seriously sick. As such there was nothing which prevented him from inquiring about the progress of his appeal either directly from the Court or through his advocate when he had duly instructed to rule the notice of appeal and to request for G documents for preparation of the record. His indolence is further demonstrated by the fact that upon his return to the country, he did not go to see his advocate promptly; he did so only after some eleven or twelve days. His claim that he was convalescing during this period is baseless in view of the fact that he was not hospitalized at any time H and was not seriously sick. His advocate's indisposition and temporary absence from the country cannot help him either. His own advocate when arguing this application disclosed that his indisposition started on 25.11.89, which is over two months after he received from the Court the documents for preparation of the record. That provided more I than ample time during

which he could have informed his client of his receipt of the same and ask him for further instructions in the matter, if A any.

Mr. Lobulu further contended that the appeal had overwhelming chances of success, that the appeal was already filed, that the court should not enforce the rule strictly so as to deny justice to the appellant and that if the application is granted, no prejudice would be caused to the either side. We think that these matters do not advance the B appellant's case anywhere. This is a case involving an inordinate delay in lodging the appeal. The appellant has a duty to explain such inordinate delay but he has not. We think that the matters now being put forward by counsel might have been relevant if the appellant explained the inordinate delay but since he has failed to do so, we do not C think we are obliged to consider them.

We therefore uphold Mr. Kinabo's submission that no sufficient reason, in fact no reason at all, is shown for the delay, and hence for granting the leave sought to lodge the appeal out of time. The application is accordingly D dismissed with costs.

Appeal dismissed.

E

[zRPz]ABADIAH SELEHE v DODOMA WINE COMPANY LIMITED 1990 TLR 113 (HC)

Court High Court of Tanzania - Dodoma

Judge Masanche J

28 August, 1990 F

Flynote

Civil Practice and Procedure - Prerogative orders - Discretionary remedy - When they may issue.

-Headnote

This was an ex-parte chamber application for leave to apply for orders of certiorari and mandamus. Full facts G appear in the ruling.

Held: (i) An order of mandamus is a discretionary remedy. As a general rule the court will refuse to issue the order if there is another convenient and feasible remedy within the reach of the applicant; H

(ii) Certiorari being a discretionary remedy for courts to issue cannot be issued in a case where there is already a contractual relationship between landlord and tenant, a relationship of a commercial or business nature. The I recourse to the courts of law to adjudicate on the breaches of contract would be better procedure.

1990 TLR p114

MASANCHE J

Case Information

A Order accordingly.

[zJDz]Judgment

Masanche, J.: This is an ex-parte chamber application for leave to apply for an order of certiorari and mandamus. It is accompanied by an affidavit. The affidavit is however not an elegant one. This is not surprising B because as I came to discover later, the applicant is pursuing the matter himself without the assistance of a lawyer.

From the affidavit and indeed entire record, I gather the following facts:

That the applicant got employed by Dodoma Wine company (popularly known as DOWICO) as Laboratory C Assistant Grade II and was a Production Supervisor in the wine production section. Sometime at the end of December, 1986, it was discovered that each time workers reported for duty in the morning, they found wine making equipment in disarray, suggesting that some other people had been using the equipment the previous night. D It became clear that a group of workers were making wine outside normal working hours, and this wine got smuggled out of the gate and got sold in town.

Then, one day, the applicant and two other members of staff found some undergrade wine in a shop in town. That E wine was not standard wine made by DOWICO. All these happenings never got reported to the Management which got annoyed, it seems, and dismissed the applicant from his job. There was a second worker who also got dismissed but it is not known how he is pursuing his case.

It is that dismissal that the applicant is aggrieved of.

F The matter went to a Conciliation Board and it appears the applicant lost the case. He appealed to the Minister for Labour against the decision of the Conciliation Board, confirming the dismissal by the Management. Unfortunately, the appeal was not taken up as the application was out of time in so appealing. It is, therefore, G against all such unsuccessful attempts that the applicant has decided to come to the High Court and pursue the matter by way of certiorari and mandamus.

The law about orders of certiorari and mandamus is quite clear in this country, and I can do no better than quote my brother Samatta J. (as he then was) in the case of Moris Onyango v The Senior Investigating Officer H Customs Department Mbeya Criminal Application No. 25 of 1981; wherein he said:

It is entirely correct preposition to say that an order of mandamus is a discretionary remedy. The order is not one of right and it is not issued as a matter of course. The purpose of the order is to supply defects of justice. It will therefore issue I where there is no

1990 TLR p115

specific legal remedy for enforcing the specific legal right claimed or where, although there is an alternative legal A remedy, such mode of redress is considered by the court to be less convenient, beneficial and effectual. As a general rule the court will refuse to issue the order if there is another convenient or feasible remedy within the reach of the applicant (Emphasis Supplied) (Also see the case of Lakaru v Town Director (Arusha) (1986) TLR page 326.) B

Again in the case of Assistant Registrar of Buildings v Frederick Kibwana Criminal Appeal No. 1 of 1978 (Court of Appeal) the Court there has said: C

Certiorari being a discretionary remedy for courts to issue cannot be issued in a case where there is already a contractual relationship between landlord and tenant, a relationship of a commercial or business nature. The recourse D to the courts of law to adjudicate on the breaches of contract would be better procedure.

In this instant matter before me, the applicant was a worker, employed by DOWICO. There was, therefore, a E contractual relationship between him and DOWICO a contract of service. If, therefore, the applicant, feels that he has been unjustly dismissed, he may sue the employer for wrongful dismissal. In short, therefore, there is a remedy and a forum. Leave to apply for orders of certiorari and mandamus is refused. F

Order accordingly.

1990 TLR p115

G

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v ELIAS LAURENT MKOBA AND ANOTHER
1990 TLR 115 (CA)

Court Court of Appeal of Tanzania - Tabora
Judge Chipeta J

28 August, 1990 H

Flynote

Criminal law - Charge - Joint - No evidence of common intention - Not possible to say which accused committed the offence - Benefit of the doubt to all - Acquit. I

Evidence - Of a witness with own interest to serve - Value.

1990 TLR p116

-Headnote

A The two respondents were jointly charged with the offence of stealing by public servant. Charges against a third person were dropped and the prosecution used him as a witness. The respondents were acquitted by the trial court because there was no evidence of common intention nor was it possible to say which accused committed the B offence. The DPP appealed.

Held: (i) P.W.3 was a witness with his own interests to serve. He could not, therefore, be expected to have said anything other than that which would exculpate him from liability;

C (ii) where, in the absence of evidence of common intention, it is not possible on the evidence to say which of the accused persons jointly charged committed the offence, then all the accused persons must be given the benefit of the doubt.

Case Information

D Appeal dismissed.

[zJDz]Judgment

Chipeta J.: In Kigoma District Court, the two respondents, Elias Laurent Mkoba and Charles Mholo, were charged jointly with the offence of stealing by public servant c/ss 270 and 265 of the Penal code on a total of 22 E counts, that is, l 6 counts in respects of the first respondent and six counts in respect of the second respondent.

After a full trial the two respondents were acquitted on all counts. Dissatisfied, the Director of Public Prosecutions now appeals to this court.

F The prosecution's evidence was that at the material time the first respondents, Elias Laurent Mkoba was an accounts assistant while the second respondent was a general clerk. Both of them were employed by the Tanzania Railways Corporation Marine Operations, Kigoma. Between 3rd July, 1987 and 16 November, 1988, the first G respondent received a total of shs.1,920,507.20 from one Bernard Ezekiel Bundala (P.W.3) being coaching and goods earnings from M. V. Mwongozo. The second respondent, on the other hand, received a total of

shs. 576,908.20 from P.W.3.

H The procedure that was supposed to be followed in dealing with earnings from M. V. Mwongozo was that the steamer clerk, in this case P.W.3, had the duty of collecting revenue. He then had to record the revenue collected in a Cash Remittance Note Book which has two identical leafs. After filling the two leafs with the total amount earned, the steamer clerk himself would go to bank the money, and the leaf on the right hand side of the Cash Remittance I Note Book is then detached and attached to the paying-in slip after Cash Remittance. Note has

1990 TLR p117

CHIPETA J

been duly stamped by a bank teller. The two documents are then sent to the Chief of Finance who then sends an A acknowledgement to the Marine Department.

An administrative Manager, marine Department, Kigoma, one Sebastian Nandi P.W.4 testified that the two respondents and P.W.3 used to work under him and that P.W.3, who was a steamer clerk had the duty of B receiving revenue and banking the money. According to P.W.4, he changed the system sometime in 1986 after some theft was detected. It was arranged that P.W.3 was to hand the earnings to the accountant, that is the first respondent, who was then entrusted with the duty of banking the money. After banking the money, the first respondent was supposed to give the Cash Remittance Notes and paying-in-slips to P.W.3. P.W.3 was in turn C supposed to prepare comparative accounts and send the same to their Headquarters in Dar es Salaam.

After direction that unusual procedure, P.W.4 took for granted that the new system was being followed, and P.W.3. never complained to him that he was not receiving the Cash Remittance Notes from the first respondent. D Besides, there does not appear to have been any official handing over of duties and relevant revenue documents between P.W.3 and the first respondent. P.W.3 however, testified that he used to hand over the money to the first respondent and, in the absence of the first E respondent, to the second respondent, and that each one of the two respondents used to acknowledge receipt of the money by signing in a book (Exh.P. 1) which was improvised by P.W.3. and is not an official accounting document of the corporation. According to P.W.3, he complained to his supervisors at Kigoma about the failure of F the first respondent to give P.W. 3 the Cash Remittance Notes, a fact which was denied by P.W. 4. P.W.3 also denied having received any miscellaneous receipts for any of the respondents.

An accounts clerk from the Corporations Headquarters, one Naiman Isaya Tarimo (P.W.5), testified that the last G time he received Cash Remittance notes from Marine, Kigoma, was on 10th September, 1987, and that they were prepared by P.W.3.

When the disappearance of the money came to light, the matter was reported to the Police and the two respondents H as well as P.W.3 were arrested. The three of them were then jointly charged with these offences on 31st December, 1988, with P.W. 3 the first accused. However, on 18th July, 1989, the charge against P.W.3 was withdrawn and he was used as a witness.

In his defence, the first respondent, who was the first accused at the trial, testified that prior to his arrest, he was an I acting accountant. Prior

A to 1986, P.W.3 wa responsible for keeping the money and bankin it. Later he, the first respondent, was being given the money by P.W.3 for safe custody prior to the money being banked by P.W.3 the next day. He went on to say that he did receive the money as shown in Exhibit P.1 but he added that he only received it for safe custody B before giving it to P.W.3 for banking the next day. As to why he did not issue miscellaneous receipts, the first respondent said that it was for P.W.3 to issue the same and that there were no miscellaneous receipt books in his office. Regarding his signing in Exhibit P. 1, the first respondent said that it was for the purpose of enabling him to C easily do a reconciliation of the accounts as he also kept other monies for difference purposes in his safe, and also to ensure that the cash deposited with him by P.W.3 was the same account P.W.3 was to take the next day for banking, and further, that the

register (Exhibit P. 1) would assist him in case of surprise checking by auditors who D would then clearly see the source of the case in his safe. The first respondent denied having received any money from the second respondent.

The first respondent called one Kange who testified that when he was transferred to Mwanza from Kigoma, he handed over his duties to the first respondent and that miscellaneous receipt books were not among the documents E he handed over because they were not available in the office.

In his defence, the second respondent said that at the material time he was charged with the duties of preparing reports in respect of WADU, Insurance, JUWATA and issuing leave passes. He went on to say that when the first F respondent was handed over duties by the former accounts, the first accused assigned him the duties of received earnings, including earnings from the steamer clerk in the absence of the first respondent, and that he used to hand over the money to the first respondent on his return. The second accused said that this arrangement was made G because the prior clerk, one Ndanuka (D.W.4) had no safe.

I have carefully considered that prosecution's evidence. Quite frankly, the prosecutions' case was unsatisfactory. As the learned trials resident Magistrate pointed out, the duty of banking the revenue from M. V. Mwongozo was that H of the steamer clerk, P.W.3. The changes allegedly made by P.W.4 brought in vagueness and lack of clarity as to who was supposed to do the banking. P.W.4 issued no written directive to that effect, and he appears to have not bothered to ensure that his system, which was contrary to the Corporation's regulations, was being followed. So we I only have the word of the respondents against that of P.W.3.

1990 TLR p119

CHIPETA J

As conceded by the Republic, P.W.3 was a witness with his own interests to serve. He had himself been charged A jointly with the respondents. He could not, therefore, be expected to have said any thing other than that which would exculpate him from liability. For instance, if the arrangement made by P.W.4 was that the first respondent would do the banking and then pass on paying-in-slips and Cash Remittance Notes to P.W.3 for P.W.3 to prepare B comparative accounts and send then to Dar es Salaam, why did P.W.3 remain silent during all those months when he discovered that the Cash Remittance Notes were not forthcoming?

There is one other point. According to the prosecution's evidence, there were not remittances between 3rd July C 1987 and 16th November, 1988. But the evidence of P.W.5 was that he received the last Cash Remittance Notes from P.W.3 in September, 1987. This suggested that P.W.3 was doing the banking.

In short, what comes out clearly from the evidence is that it is impossible to say who between the two respondents D and P.W.3 stole the money. There is authority for the proposition that where, in the absence of evidence of common intention, it is not possible on the evidence to say which of the accused persons jointly charged committed the offence, then all the accused persons must be given the benefit of the doubt. It was so held in the case of E Jumanne Salum Pazi v Republic, [1981] TLR 246, in which Kisanga, J. (As he then was) stated, at page 251:

I take the view that where two or more persons are jointly charged with the offence and it is impossible to ascertain which particular one committed the offence then all of them must be acquitted unless there be established on the part of F the accused persons common intention to commit the offence charged.
That is the position in this case, and there is no evidence to show that the respondents and P.W.3 acted with G common intention.
For the foregoing reasons, I am clearly of the view that the learned trial magistrate was perfectly justified in giving the respondents the benefit of the doubt in the circumstances.
In the upshot, this appeal fails and so is hereby dismissed. H
Appeal dismissed. I
1990 TLR p120
A
[zRPz]REPUBLIC v MUSTAPHA SANDIRI 1990 TLR 120 (HC)

Court High Court of Tanzania - Mtwara
Judge Maina J

20 October, 1990
Flynote
B Criminal Practice and Procedure - Revision - Accused committed to High Court for sentencing - Conviction is bad - High Court may exercise revisional jurisdiction.
Criminal Law - Threats to commit an offence - Whether sufficient to constitute commission of the offence.
-Headnote
C The accused, Mustapha Sandiri was prosecuted for commission of an offence of arson c/s 319(a) of the Penal Code, Cap 16. The basis of his prosecution were threats which he uttered the day before the complainant's house was set on fire.
D The trial Magistrate found Sandiri guilty of the offence charged and committed him to the High Court for sentencing. Counsel for the Republic declined to support the conviction for lack of sufficient evidence and further urged the Court to exercise its revisional powers to quash the conviction.
E Held: (i) When an accused person is committed to the High Court for sentencing, under section 171 of the Criminal Procedure Act 1985, and it appears that the conviction is for any reason bad, the High Court may, instead F of sentencing the accused, proceed to revise the proceedings;
(ii) threats alone cannot be conclusive evidence that the person who uttered the threats has committed the offence. There must be something tangible other than the occurrence of the threatened act to indicate that the accused did carry out his threat.
Case Information
G Accused acquitted.

Boaz, for the Republic.
[zJDz]Judgment
H Maina, J.: The accused was convicted by the District Court at Masasi of arson contrary to section 319 (a) of the Penal Code. The learned district magistrate committed the accused to this court for sentencing under section 171 of the Criminal Procedure Act, 1985.
When the matter came up before me for sentencing, Mr. Boaz, the learned State Attorney submitted that the I evidence on record was insufficient to convict and urged the court to exercise its revisional power
1990 TLR p121
MAINA J
and quash the conviction. The learned State Attorney cited section 171 (b) of the Criminal Procedure Act 1985 A which states of follows:
the provisions of this section shall be so construed as to enable the High Court in its consideration of any case thereunder to exercise its power of revision under section 373 of this Act in the same manner as if the record of the B proceedings had under that section been reported to the High Court for Orders.
In my opinion, when an accused person is committed to the High Court for sentencing, under section 171 of the Criminal Procedure Act, and it appears that the conviction is for any reason bad, the High Court may, instead of C sentencing the accused, proceed to revise the proceedings. That would appear to be the meaning of section 171(6) of the Act. The question now is whether the evidence was sufficient to base a conviction. The only evidence against the accused is of threats which he uttered the day before the complainant's house was set on fire. It was alleged by D the persecution witnesses that the complainant, PW1 Joseph Peter and accused had quarrelled on 25 June 1990. The complainant allegedly assaulted the accused who threatened that he would do something serious to the complainant. On the following night the complaint's house was set on fire as he and his family slept in the house. No E one saw the accused setting fire to the house, but the accused was later arrested on suspicion because of the earlier threats. The learned district magistrate held that the evidence of the threats which the accused had uttered was sufficient to prove that the accused had burnt the complainant's house. As already stated, the threats were F uttered by the accused during the day on 25 June 1990, and the complainant's house was set on fire during the following night. Can the evidence of threats constitute sufficient evidence to establish beyond reasonable doubt that the accused is the person who set fire to the complaint's house? Mr. Boaz, the learned State Attorney, submitted G that the evidence did not prove the accused's guilt beyond reasonable doubt.
The evidence against the accused, is clearly circumstantial. In the case of Simon Musoko v R. [1958] EA 715 it was held that: H
In case depending exclusively on circumstantial evidence, the court must find before deciding upon conviction, that the inculpatory facts are incompatible with the innocence of the accused and incapable of explanation upon any other hypothesis than that of guilt. I
1990 TLR p122

A The decision in the Musoko case has been followed by this court in several cases, one of which is Carnal Samson v R. [1972] HCD No. 184. In that case the only evidence against the accused was that he had threatened to kill the complainant or burn her house. Later that same night, the complainant's house was set on fire. The B appellant's conviction was quashed by this court which held that the evidence of threats was inconclusive to base a conviction for arson. As the court stated in the Carnal Samson case, where must be something tangible other than the occurrence of the threatened act to indicate that the appellant did carry out his threat. The fire could have been C caused by numerous other causes besides the appellant, i.e a flying spark, a malicious fellow who had heard the appellant utter the threats, etc." The fact in the present case are almost identical with the Carnal Samson case.

Threats alone cannot be conclusive evidence that the person who uttered the threats has committed the offence, for D as Mfalila Ag. HJ. (as he then was) said in the Samson case "a threat is of the highest value when it corroborates some other evidence in order to link the accused with the offence charged. It is weakest when on its own, for it is E then reduced to mere circumstantial evidence in the form of a disconnected chain."

The evidence in the present case did not prove the accused's guilt, for the reasons given. The conviction which is not supported by the Republic, is quashed and the sentence is set aside. The accused must be released from F custody forthwith unless he is lawfully held on other matters.

Appeal allowed.

1990 TLR p121

G

[zRPz]S. ZAHIR ROSHANALI HIRANI v REGISTRAR OF TITLES 1990 TLR 122 (HC)

Court High Court of Tanzania - Mwanza

Judge Sekule J

H 1 October, 1990

Flynote

Power of attorney - Donee transfers to donee's son donor's title to property without donor's knowledge and consent - I Whether transfer valid.

Power of attorney - Revocation - When complete as against donee.

1990 TLR p123

SEKULE J

This is an appeal under section 102(i) of the Land Registration Ordinance, cap 334. A

Father of the petitioner/appellant, bought property jointly with his brother. When the latter left the country for England he appointed the former his attorney with general powers. On 20th June 1987 the attorney transferred the donor's half of the property to the petitioner. Subsequent to the transfer a subtitle in the name of the petitioner B appellant was issued by the respondent. Later on, the donor of power of attorney objected to the transfer and applied for the rectification of the Register. In order the have his named restored in the register and the name of the

petitioner struck out. The Registrar struck off the name of the petitioner from the register hence this appeal. C

Held: (i) Transfer of title by the donee of power of attorney done without knowledge and consent of the donor is invalid;

(ii) consideration of love and affection cannot be attributed to the donor of power of attorney without his D knowledge and consent;

(iii) revocation of a power of attorney is only effective if brought to the attention of the donee.

Case Information

Order accordingly. E

[zJDz]Judgment

Sekule, J.: This is an appeal under section 102(1) of the Land Registration Ordinance, Cap 334 by Zahir Roshanali Hirani against the decision of the Registrar of Titles of striking the name of the appellant/ petitioner from the register. F

The background of the matter is that the father of the appellant one Roshana Jawal Hirani is a brother of one Madat Jamal Hirani.

It would appear that the two brothers, i.e. Madat Jamal Hirani and Roshana Hirani own some real property on Plot No.19 Mwanza Industrial area. It would further appear in the course of time, Madat Jamal Hirani left the country G and went to England.

While away in England, Madat did on the 27th of March 1975 execute a general power of attorney and appointed his brother Roshanali Jamal Hirani a person who was still a resident in Mwanza his attorney in accordance with section 10 of the Powers of Attorney Act 1971. H

On the 20th of June 1987, Roshanali Jamal Hirani, using the powers of attorney granted to him, transferred Madat's half share in the right of occupancy on Plot No.19 Industrial Area Mwanza to the appellant/ petitioner, Zahir Roshanali Hirani, his son.

Subsequent to this transfer a subtitle with registration No.3033050/ I

1990 TLR p124

SEKULE J

A 28 was issued by the Registrar of Titles in the name of the appellant, Zahir Roshanali Hirani.

It is alleged that the consideration for this transfer was natural love and affection on the part of donor of the power of attorney to the appellant/petitioner as expressed through the donee of the power of attorney, Roshanali Jamal B Hirani.

Madat, the donor or grantor of the power of attorney, did however on the 16th of September, 1987 object to this transfer and applied to the Registrar of Titles, for the rectification of the Register accordingly. That is to have his name restored in the Register and the name of the petitioner be struck out. And on the 13th of January 1988, the C Registrar of Titles formally requested the appellant petitioner to surrender his subtitle for the rectification process. And ultimately the Registrar of Title struck off the name of the appellant/petitioner from the Register.

The appellant was dissatisfied with this decision, hence his appeal under the provisions of section 102(1) of the D Land Registration Ordinance Cap 334.

At the hearing of this appeal, the appellant/applicant was represented by Mr. Nasimire learned Counsel. Mr. Mussa learned state Attorney appeared for the Registrar of Titles.

E Mr. Nasimire, learned Counsel started off by recapitulating the background of the matter as reviewed above.

He further submitted that the appellant/petitioner's name was struck out from the register on the following alleged grounds. Firstly that there was fraud on the part of the donee of the power of attorney and the petitioner in this F appeal in transferring the half share in the estate to the appellant/petitioner. And that at the time the transfer was effected, the power of attorney to the donee, Rashanal Jamal Hirani, had been revoked. And that allegedly, the revocation was done on the 31st of December, 1986.

G Mr. Nasimire further contended that the other grounds that are alleged to have led to the striking off of the appellant's title in the register is that the donee did not comply with the provisions of section 334. And further that the donee of the power of attorney as an agent of the donor of the power of attorney acted outside his authority in H transferring the donor's title in the estate to his son, the appellant.

Addressing himself on the grounds that led to the striking out of the appellant's name from the register as itemized herein above, Mr. Nasimire, submitted that the power of attorney to the donee Roshanali Jamal Hirani could have I been revoked as claimed, he however contended that the pertinent issue was the donee aware of this revocation. In his view, there was no clear and firm evidence to the effect that the

donee was aware of the alleged revocation at the time he effected the transfer of the donor's title to the estate to the A appellant. Mr. Nasimire argued that all there is, on this issue, is the assertion of the Assistant Registrar of Titles that the power of attorney to the donee had been revoked and also a letter to that effect from the donor of the power of attorney which Mr. Nasimire argued, could have been back dated. B

Mr. Nasimire therefore contended that as the donee of the said power of Attorney was unaware of the revocation, the transfer he effected with regard to the donor's interest in the right of occupancy in question was valid.

Mr. Nasimire also argued that there was consideration in this transaction as the law recognizes gifts which are given C for natural love and affection and reference in this regard was made to section 25 of the Contract Ordinance, Cap 433. Elaborating Mr. Nasimire submitted that the donor of the power of attorney is the brother of the donee of said power of attorney. D

On the other hand, Mr. Mussa learned State attorney submitted that the decision of the respondent, Registrar of Titles to strike out the name of the appellant/petitioner was justified under the provisions of section 99 (l)(d) of Cap 334 as there was sufficient material before him indicating that the transfer was fraudulently made. The donor of the E power of attorney had in his declaration, annexure C dated 26th August 1987 stated that he had revoked the power of Attorney that was granted to the donee - on the 31st December 1986. And this declaration is

supported by the deed of revocation, annexure D that was executed and attested by a Solicitor on the 31st of December 1986 F as stated by the donor in his declaration mentioned above.
Mr. Mussa therefore submitted that this transfer was in these circumstances, fraudulent and illegal as it was earned out of powers that had ceased to exist.
Mr. Mussa however conceded that there was no clear evidence indicating that the donee received the revocation G order or/and notice.
Mr. Mussa therefore queried why was the affidavit not filed. And he also argued that if the donor was in constant touch with donee, then the donee must have been made aware of the revocation as soon as it was made.
Mr. Mussa seemed therefore to contend that the donee must have been aware of the revocation before the transfer H was effected. Mr. Mussa further submitted an alternative argument, and that is, the donee acted beyond the scope of his authority. He stated that in annexure 'C' to the respondent's case, the donor stated clearly that he I would not have effected the transfer or/and he would not have transferred the title in question if

A he had been present as the exercise carried out was to extinguish his title to the property in question. Mr. Mussa also contended that there was no consideration with regard to the transaction, because the donor was not aware of the transaction and as such the alleged natural love and affection could not be attributed to him.

B As to indemnity, Mr. Mussa urged the court to reject this prayer and invoke the provisions of section 104 of Cap 336 as the transfer was a result of fraud. Otherwise the petition should be dismissed.
There is no dispute that Madat Jamal Hirani did grant a general power of attorney to Roshanali Jamal Hirani, the C father of the appellant/ petitioner in 1975, annexure 'A'.
Roshanali Jamal Hirani under the power of attorney had authority to do or act for the affairs of the donor of the powers of attorney as generally an agent would do with regard to the affairs of his principal.

D It is this power of attorney, the petitioner contends that his father used to transfer the 1/2 share of the donor of the power of attorney in the Right of Occupancy on plot No. 19 at Industrial area Mwanza. And further petitioner contends the donor of the power of attorney was aware and assented to the transaction. On the other hand the respondent to this appeal contends, this transfer was fraudulent in the sense that at the time it was effected, the E power of attorney to the petitioner's father had long been revoked.
And that the donee of the power of attorney acted without authority in effecting this transfer which had the effect of extinguishing the title of the donor of the power of Attorney in the property, without the express authority of the said F donor.
And further, as the donor of the said power of Attorney was not aware of this transaction, there was no consideration with regard to this transaction, as the natural love and affection could not be attributed to him.

G I have carefully read and considered the petition, the submissions of both counsel and the documents the parties have filed.

It would appear to me after a careful examination of the petition and the documents that have been filed by the parties, the crucial issue for determination in this appeal, is, whether or not the donor of the power of attorney was H aware and consented to the transfer of his 1/2 share in the property in question. For this seems to be the case for the petitioner that is, apart from the existence of the power of attorney, at the material time, Mr. Madat Jamal Hirani was informed of this transaction and that he consented to it. This to me appears to be the most crucial question in I this matter.

1990 TLR p127

SEKULE J

The petitioner has for example stated in paragraph 6 of his petition as follows: A

The petitioner is ready to affirm by way of affidavit that the donor had constantly been informed of the disposition complained of and that he had assented to the same. B

Again in paragraph 3 of the petitioner's letter to the Assistant Registrar of Titles dated 23rd May 1988 enclosed in this file, the petitioner stated as follows: C

Mr. Madat was contacted on telephone just before and after the transfer and he had given his consent unreservedly. I am prepared to swear an affidavit to support this fact. Surprisingly Mr. Madat did not notify me or Mr. Roshanali of his revocation. D

The question is, what evidence has the petitioner tendered to support his claim in this regard. I dare say apart from his mere assertion as indicated above, nothing. Even the affidavit he had promised to make, it appears it was not so made as it has not been filed. E

The lack of substantial evidence on the part of the petitioner to support this claim i.e. the donor was aware and consented to the transfer has caused me considerable anxiety and concern.

This was an important disposition and if the donor had been informed of it and consented to the disposition, one F would have expected the petitioner or the donee of the power of attorney to say at least when the donor was contacted about this matter and would probably have required some written record from the donor signifying his assent to the transaction. As already said this was an important disposition the cause and effect of which was the donor to divest himself of his property. And further as the donee of the power of attorney saw the need to contact G the donor before the disposition was effected, one would have expected him to require a more formal authorization from the donor. This as already said was a deal involving real property, I am thus inclined to the view that it would not have been that casually hand led even between relatives as the petitioner seems to contend. H

There is also another feature which has equally caused me some anxiety. And that is, for reasons that were not made known to this Court, the donee of the power of Attorney has not given his word by affidavit or otherwise about this matter. He was the principal actor in this transaction. He was therefore the person in a position to throw I

1990 TLR p128

SEKULE J

A more light on this issue. But as already stated he has not done so, and no reasons as to why he has failed to do so have been given.

There is another important question and that is, who initiated this transaction. Going by the statements of the B petitioner as stated in paragraph 6 of the petition and in paragraph 3 of letter dated 23rd May, 1982, paragraphs which have been referred to above, the donor does not appear to have been the initiator of this transaction. According to the petitioner, the donor was contacted or informed of the matter and assented to the transfer. It would therefore appear the donor was not the initiator of this move. It was the donee of the Attorney.

C In have found this to be rather strange, because if the donor was giving a gift to the petitioner, the son of his brother, for natural love and affection as claimed, one would have expected him (the donor) to be the initiator of the transaction. He would not in the circumstances be the person to be contacted and required to give his consent to D this transfer. He was supposed to be the giver of the gift. I am therefore satisfied that there is no evidence at all to support the petitioner's claim that Mr. Madat was contacted and that he gave his consent to this transaction All there is is the petitioner's bearer assertion in that connection. And this in my view is not enough.

E On the contrary, the evidence available seems to support the claim of Mr. Madat, to the effect that he was not informed of this transaction before it was effected.

As already said, if Mr. Madat was surrendering his title in the property to the petitioner as a gift for natural love and F affection as claimed by the petitioner - he should ordinarily had been the prime mover or the initiator of the transaction and not the person to be informed of the intended transaction.

There is also the conduct of Mr. Madat, the donor of the power of attorney. And this is, he took what could be G said to be immediate action for some one who was out of the country to object to the transfer.

The transfer was effected on the 20th June 1987 and Mr. Madat made a formal and attested declaration objecting to the transfer. On the 26th August 1987, annexure C. This was about two months from the date the disputed H transfer was effected.

If Mr. Madat was informed and assented to the transaction as claimed by the petitioner, I have found it difficult to believe, in the absence of real evidence that Mr. Madat - would have changed his mind so shortly after he had I approved the transaction. And would have taken such formal steps to repudiate his consent with such a short time.

I am therefore on this evidence and the conduct of Mr. Madat satisfied that he was not aware of this transaction A and he never consented to it.

And in the circumstances, I am of the view the consideration which is attributed to him with regard to the transfer of his half share in the property i.e. natural love and affection to the petitioner cannot on the evidence tendered be B attributed to him. He was not aware and he has also stated in his declaration that he had no intention of transferring his title in the property to the petitioner.

I am therefore of the view that there was no consideration in this transaction - in as far as Mr. Madat was C concerned as the issue of natural love and affection cannot on the evidence tendered be attributed to him.

The next issue for consideration is this, could the petitioner's father, i.e. the donee of the power of Attorney have validly effected the transfer using the general power of Attorney he had. I have considered this matter, and I am of D the view that since the transfer in essence meant to extinguish the donor's right and title in the property, the donee of the power of Attorney, in doing so could hardly be said to have been doing or managing his principal's affairs to his advantage.

Therefore if Mr. Roshanali Jamal Hirani purportedly used the power of attorney alone to effect this transfer then in E the circumstances of this case and in the absence of express authority from the donor of the power of attorney to effect such transfer, he did in my view exceed his authority. And the effected transfer was therefore in my opinion not valid and particularly in the absence of any consideration as pointed out hereinabove. F

And as a matter of fact, for the set of facts and circumstances as discussed in the course, of this judgment, and since, I have not been able to see real evidence from the petitioner explaining how exactly this transaction came to be effected. I have found it difficult to rule out the possibility of fraud on the part of the donee of the power of G Attorney or/ and the petitioner in this transaction.

Next, there is the issue of the revocation of the power of attorney. It is true according to annexure, Mr. Madat revoked the General Power of attorney granted to Mr. Roshanali Jamal Hirani on the 31st December, 1986. This H was before the transfer was effected. The deed of revocation was executed by a Solicitor in Britain. In the absence of evidence to contrary I have no reason to doubt its authenticity. I cannot therefore accept the petitioner's claim to the effect that the document may have been back dated. I

1990 TLR p130

SEKULE J

A The petitioner claims however that the donee was not aware of this revocation. The donee himself has not personally given his word on this. Likewise, the donor, has not explained how he communicated the notice of revocation to the donee. There is therefore no real evidence establishing that the donee was aware of this revocation.

B I am therefore of the view that if the transfer had been otherwise valid, this transaction could not have been vitiated by reason of the revocation as the donee claims to have not been aware of it and there is no clear evidence pointing to the contrary. As rightly pointed the deed of revocation itself, nothing contained in the revocation deed C would have effected the validity of any act or thing done by the said Attorney by virtue of the powers conferred on him before he had received notice of the said revocation thereof.

I am otherwise satisfied for the reasons given hereinabove that the transfer was not valid.

D Lastly, there is the question of indemnity to the petitioner, I have considered this issue, and I am of the settled opinion that the petitioner cannot be indemnified, firstly because there is no evidence that the petitioner had effected any new development of the property or has incurred

any expenses with regard to the property in question. And in E any case Mr. Madat registered his objection only about two months after the transfer had been effected I am therefore of the view that within that short time, the petitioner could not have effected any development or incurred expenses with regard to that property.

F Lastly, the petitioner and the donee of the power of attorney appear to me to be the persons who are blameworthy in this transaction, the donor cannot therefore in my opinion be the person to compensate or to indemnify them for a situation which they appear to have the authority and which appears to have been purposely carried out without the knowledge or/and consent of the donor or the power of Attorney and was not to his advantage or interests.

G The Register of Titles was therefore right to make the rectification. This appeal/petition fails and it is hereby dismissed.

H Appeal dismissed.

1990 TLR p131

A

[zRPz]ABDUL SALUM MNUYE & ANOTHER v REPUBLIC 1990 TLR 131 (HC)

Court High Court of Tanzania - Mtwara
Judge Kazimoto J

23 November, 1990

Flynote

Criminal Law - Wildlife Conservation - Being in unlawful possession of government trophy - Wildlife Conservation Act B 1974.

Statutory interpretation - Penalty - Enhanced by new law after commission of offence - Whether enhanced penalty may be imposed. C

-Headnote

On 22nd April, 1988 Abdul Salum Mnuye and Abdul Zuberi Ndete were charged with being in unlawful possession of government trophy c/s 67(1) and 2 (b) of the Wildlife Conservation Act 1974. The trophy was found and dug out in a shamba belonging to Mnuye. D

The trial magistrate convicted the appellants and sentenced them to 20 years imprisonment on the strength of Act no. 10 of 1989 which came into force on 21st May 1989. The Act enhanced the maximum penalty for the offence charged from 7 years to 20 years imprisonment. On appeal, E

Held: (i) If the first appellant had been found with tusks in his shamba, in law he is deemed to have possessed them unless he can show either that he had authority for keeping them there or that he did not know of their presence in his shamba, F

(ii) no penalty can be imposed for any criminal offence which is heavier than the penalty in force at the time the offence was committed.

Case Information

Appeal against conviction dismissed,

Appeal against sentence partly allowed. G
Hyera, for the respondent.
[zJDz]Judgment
Kazimoto, J.: Abdul Salum Mnuye, and Abdul Zuberi Ndete the appellants have been convicted for being in H unlawful possession of government trophy c/s 67(1) and 2(b) of the Wildlife Conservation Act No.12/74 and each sentenced to 20 years imprisonment. The second appellant was also convicted of possession of firearm without a licence as amended by 3rd Schedule to Act No.13 of 1984. He was sentenced to 7 years imprisonment. Both have I appealed and their appeals have been consolidated.
1990 TLR p132
KAZIMOTO J
A The case at the trial was simple and straight forward. Twelve elephant tusks were found and seized from the shamba of the first appellant. The evidence further disclosed that it was the first and second appellants who directed the police to where the tusks were buried and both were present when the tusks were dug out. The second B appellant had claimed ownership of 6 tusks. There was clear evidence that the first appellant had permitted the second appellant to hide the tusks in his shamba. The first appellant had conceded on ground one of his appeal that the tusks were found in his shamba. His only complaint is that he was not the owner of the tusks. That is a non issue in this case. If the first appellant had been found with tusks in his shamba in law he is deemed to have possessed C them unless he can show either that he had authority for keeping them there or that he did not know of the presence of the tusks in his shamba. Neither of this has been shown. The manner the tusks were hidden clearly proves to his D knowledge that the tusks were illegally hidden in his shamba.
The second appellant had querried the judgment of the trial court on how he could be convicted on the evidence of the first appellant on this issue. I find no merit in this complaint. The first appellant was not the only person who gave E evidence in this case. I am satisfied that both appellants have been properly convicted on the first count and the appeal against the first count is dismissed.
The second appellant had admitted in round one of his appeal that he was found with a firearm which was not his. F He contended that he was given it by Amil Mpondi to take to Ally Salum. But that does not licence him to possess that firearm. He had no licence and he was rightly convicted on that count.
The appellants were sentenced to 20 years imprisonment in count 1. That sentence is illegal. The maximum penalty for the offence charged is 7 years imprisonment. The appellants were also ordered to undergo twelve strokes. The G imposition of strokes is unauthorized by law.
The learned trial magistrate has wrongly applied the provisions of Act. No.10 of 1989 which come into force on 21.5.89. The offences in this case were alleged to have been committed on 22.4.88. I wish only to refer the learned trial magistrate to the provisions of section 49 of the interpretation of laws and General Clauses Act, No.30 of H 1972, the case of Barjit Singh v R. [1974] LRT No. 61 and Article 13(6) (c) of the constitution of the United Republic of Tanzania which reads:

No person shall be punished for any act which before its commission was not defined as such offence, and no I penalty imposed for any criminal offence shall be heavier than the penalty in force at the time the offence was committed. As stated the maximum penalty at
1990 TLR p133
time of the alleged commission of the offence was 7 years imprisonment and there was no provision for corporal A punishment. I therefore quash the illegal sentence of 20 years and twelve strokes and set it aside. Taking into account the prevalence of such offence in Liwale District I sentence each appellant to six years imprisonment on count 1. I find no reason to vary the sentence imposed on the second appellant in count 3 . B
In the result the appeal against conviction is dismissed. The appeals against sentence are partly allowed to the extent indicated above.
Order accordingly. C
1990 TLR p133
D
[zRPz]SAMSON KISHOSHA GABBA v CHARLES KINGONGO GABBA 1990 TLR 133 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

23 November, 1990
Flynote
Administration of Estates - Appointment of Administrator - Whether the court has power to distribute property. E
Civil Practice and Procedure - Appeal out of time - Whether reasons for delay sole ground for granting leave.
-Headnote
The appellant filed an application at Kakoro Primary Court, in Ngudu, for him to be appointed administrator of F estate of his deceased father Gabba Mpondamali. In his application he claimed that the two houses on plots No. 125 and No. 33 Block A, in Ngudu Township belonged to him (applicant) and not the deceased, though the said plots were in the name of the deceased. The respondent on behalf of other members of the family filed on objection G in court against the appointment of the appellant as administrator. The trial court was satisfied and found candidate unfit for the job and instead the court appointed the Ward Secretary of the area to be the administrator of the estate. In addition the court did two things: First, it held that the houses on plots No. 125 and No. 33 block A in H Ngudu township belonged to the deceased and not the appellant. Second the Court distributed the property of the deceased to his children. The appellant, after his attempt to file an appeal out of time was rejected, filed on application for leave to appeal to the District Court out of time. The District Court rejected the application on the I ground that no reasonable ground for the delay was shown. He appealed to the High Court.

1990 TLR p134
MWALUSANYA J
A Held: (i) In determining whether or not to allow an application for leave to appeal out of time the court has to consider reasons for the delay as well as the likelihood of success of the intended appeal;

(ii) the appeal has good chances of success because the decision of the trial court has some conspicuous errors B including the court's erroneous distribution of the deceased property to his children, deciding the ownership of the houses on plots No. 125 and No.33 Block A, when the administrator had yet to distribute them.

Case Information

C Appeal allowed.

[zJDz]Judgment

Mwalusanya, J.: The appellant Samson Kishosha Gabba filed an application at Kakoro Primary Court in Ngudu District, for him to be appointed an administrator of the estate of his deceased father Gabba Mpondamali. He D stated in the application that he was a suitable candidate for the post of the administrator of the estate of the deceased because two properties viz. houses on Plots No. 125 and No.33 Block A, in Ngudu Township belong to him (applicant) and not to the deceased, though the said plots are all in the name of the deceased.

The respondent Charles Kingongo Gabba was appointed by other children of the deceased as well as the E deceased's wife, to file an objection in court against the appointment of the appellant as the administrator of the estate of the deceased. Evidence was given as to why appellant was unfit to be appointed administrator of the F deceased's estate. And it was vigorously contended that the two houses on plots No. 125 and No. 33 Block A, in Ngudu Township belonged to the deceased and not to the appellant.

The trial court found the appellant to be unfit to be appointed as an administrator of the estate of the deceased because he claimed to own part of the estate of the deceased. And also its was found that he was at loggerheads G with other children of the deceased. And so the appellant's application was dismissed. And instead the trial court appointed the Ward Secretary of the area as the administrator of the deceased estate.

H The trial court did decide two other things, which I think was mistakenly done. First the trial court held that the house on Plots No. 125 and No. 33 Block A, Ngudu Township belonged to the deceased and not the appellant. Secondly the trial court usurped the powers of the administrator of the deceased's estate by distributing all the property to the children of the deceased including the appellant.

I The appellant decided to appeal against the judgment of the Primary Court which was delivered on 5/7/1988. The appellant presented his

1990 TLR p135
MWALUSANYA J

petition of Appeal to Kwimba district Court on 11/2/1989 and was told he was out of time and so on 14/2/1989, A he filed an application for leave to appeal to the District Court out of time. He

said in the affidavit that he was late to appeal because he had gone to see the District Registrar in Mwanza so that he appoints another District Magistrate to hear his intended appeal other than the incumbent Mr. M.R. Mlawa. The application for leave to appeal out of B time was dismissed by Mr. M. R. Mlawa D.M. It is against that dismissal that appellant has appealed to this court.

The reasons which appellant presented in the memorandum of appeal as cause of the delay are frivolous and C patently untenable. One is at a loss, if it is indeed true that the appellant was a magistrate during the colonial times, as to why he pleads ignorance of the law as the cause of the delay for his to appeal. He concedes that he should be have filed the appeal by 11.9.1988, but said that he could not do so because he was consulting the District magistrate to hear the appeal. He said that because he lodged the complaint to the District Registrar before D 11/9/1988 then it should be taken that he was not out of time.

The argument by the appellant that because he had lodged his complaint of change of magistrates to the District Registrar in time, then it should have been taken that he had not been time barred, is naïve as it is preposterous. E Apparently he is ignorant of the law despite the fact that he was a magistrate. He should have filed the appeal by 11/9/1988 and then should have started to pursue his wish to have appeal. There was no iota of good reason as to why he should not have filed the appeal in time. If this was the only materials to consider I would have dismissed the F appeal.

The learned District Magistrate should note that one of the most important points to consider whether or not to allow an appeal out of time is the likelihood of success of the intended appeal. The points raised in the intended memorandum of appeal, as well as the judgment of the trial court have to be considered to see if the intended G appeal has any chances of success. While reason for the delay in appealing in time are relevant, yet those are not the only material consideration in these matters. In this case, the learned District Magistrate, erred in not considering the chances of success of the intended appeal. H

After considering the judgment of the trial court, I am of the view that the intended appeal has good chances of success and it will be in the interest of justice if part of the judgment of the trial court is reversed. I say so because the decision of the trial court has some conspicuous errors. The appointment of the Wards Secretary as the I administrator of the deceased estate was quite correct. However the trial court had no power

A to distribute the estate of a deceased person to the respective heirs: that power of distribution is given to the administrator of the deceased estate. So the trial court usurped the power it does not have under the law. Again it is the administrator of deceased estates who knows the property of the deceased and distributes it. If any of the B property is alleged not to belong to the deceased, then the person to be used in court is the administrator of the deceased estate. In this case the trial court was wrong to decide the ownership of the houses on plots No. 125 and No. 33 Block A, when the administrator had yet to distribute them.

C If the District Magistrate had considered those above mentioned fundamental it would have granted leave to appeal out of time, despite the fact that the appellant had delayed. After all the

delay was not very long, but only five months. And so I will allow this appeal so that the appeal is filed within 30 days from today. Among other D things the District Court should consider setting aside the illegal orders of the primary court of distributing the estate of the deceased to the heirs; as well as setting aside the premature order that the two houses belonged to the deceased. As there are now two District Magistrates at Kwimba District Court, then the appeal to be filed, be E heard by a magistrate other than Mr. M.R. Mlawa.

The respondent during the hearing of appeal raised complaint as to why the decree of the Primary Court was not executed. He wondered as to whether the Senior Resident Magistrate Mr. E.P. Mtui had power to order stay of F execution by a letter ref No. 82/323 of 27/21/89 when there was no court order He said that he was even imprisoned in a criminal case for disobeying a lawful order i.e the said letter of the S.R.M. He wondered if that was not an abuse of power. All I can say is that, the complaint raised is not relevant to the appeal under discussion. My observation is the letter which is not backed up by a court order cannot have the effect of stay of execution pending G appeal. In any cause in this particular case no appeal of any kind had been lodged and up to now no appeal has been filed. If the respondent feels that there has been a case of abuse of power, he may pursue his remedy administratively or by filing a case in court for redress.

H Be that as it may, this appeal succeeds. I allow the appeal. The appellant should file his appeal at Kwimba District Court within 30 days from today. In view of the nature of my decision. I order that each party will bear its own costs of this appeal.

I Order accordingly.

1990 TLR p137

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[zRPz]REPUBLIC v ALLY SAID KIUBATYO 1990 TLR 137 (HC)

Court High Court of Tanzania - Lindi
Judge Kazimoto J

1 September, 1990

Flynote

Criminal Law - Murder - Provocation - Suspicion of adultery - Whether can afford defence of provocation in murder B

Criminal law - Murder - Provocation - Deceased statement - When provocative - Whether can afford defence of provocation in murder

-Headnote

The accused was charged with the murder of his wife. After killing the wife he dumped her body into an abandoned C latrine, buried her and made a false report to his own father and mother in law about the whereabouts of the wife. The killing took place after the accused had suspected that his wife had committed adultery, failed to arrest the D suspect after chase and

the wife had uttered words which made the accused lose his temper and hit the deceased with a billhook which was nearby.

The trial court considered whether suspicion of adultery can afford a defence of provocation in murder. It also considered whether or not the statement by the deceased can afford a defence of provocation in the circumstances. E

Held: (i) Prior knowledge by a husband of the adultery of his wife with a paramour does not bar him from raising the plea of provocation if the killing was upon finding the wife and her paramour in the act of adultery. In the present F case the accused alleges that the deceased had committed adultery in similar circumstances three times but he had never seen the deceased committing adultery; so the defence of provocation is not open to the accused;

(ii) the statement alleged to have been uttered by the deceased was provocative in law and as the accused killed G the deceased as a result of such provocation the killing was not intentional.

Case Information

Guilty of manslaughter. H

Kumwembe, for the accused

Tendwa, for the Republic

[zJDz]Judgment

Kazimoto, J.: The accused Ally Said Kiubatyo stands charged with murder o/s 196 of the Penal Code. The Court I has been informed that on or about the 13th day of October, 1989 at Chapita Village

1990 TLR p138

KAMIZOTO J

A Mingumbi within the District of Kilwa, in Lindi Region the accused murdered Zena d/o Mshamu Kimbokota The accused has pleaded not guilty

A preliminary hearing was held in accordance with the accelerated Trial and Disposal of Cases Rules 1988; B whereby the prosecution stated in detail all the facts of the case. The defence admitted only one fact that the deceased has died.

A full trial was then held and what was obvious at the preliminary hearing the accused had grudgingly to admit that Zena d/o Kimbokota was his wife; that he killed her, that after killing her he dumped her body into an abandoned C latrine and buried her and made a false report to his own father, and his mother-in-law, that the accused had to report at the authorities as he had not done so while PW1, and the relatives of the deceased went to the house of the accused, combed the surrounding area; in the shrubs, forest, valleys all in vain. Then while at the house of the D accused PW2 saw a place which had been covered with fresh sand and flies were flocking in and out. PW2 called search party, they dug out the sand and saw a human body cuddled in a kaniki and kitenge cloth. The body was identified to be that of the deceased. When the accused was asked he appeared apprehensive of and PW1 ordered E the arrest of his son and tied him with a rope and was taken into custody. The evidence of PW2 is in all fours with that of PW1 and I do not intend to repeat it.

PW1 has informed the court that since their marriage he has never received any complaint either from the accused or deceased about misunderstandings in their matrimonial life and the only complaint he got came from PW2 that F the accused had borrowed money and did not repay it. In his evidence the father of the accused (PW1) informed the court that on 15.10.1989 the accused reported to him that his wife had disappeared from home and that he did not know where she had gone. He further informed the court that the accused told him that the deceased had left all G her clothes and took with her a piece of kaniki and a kitenge and that deceased disappeared for two days. He advised the accused to report to the parents of the deceased immediately but the accused refused saying that he was tired. He informed the court further that on 16.10.89 the accused went to report to the deceased's parents that H the deceased had not been seen at home since 13.10.89 and was informed that she had not be seen at their home and that since there was only one person they would go to the accused house on the following day. On 17.10.89 PW2 together with the brothers and sisters of the deceased went to PW 1 and after consultations in the presence of I the accused it was decided the accused should go to report to the

relevant authorities. In the meantime a manhunt was mounted in the valleys, shrubs, bushes and forests around the A area surrounding when she went to answer a call of nature, which arose her suspicion. It was a disused latrine freshly covered with sand and flies flocking in and out. She prickled a stick and called in other members of the search party, undug the sail and saw a human body which was that of accused's wife. The accused was arrested. B He first denied knowledge and when taken to a justice of the peace he made a free, voluntary and full confession that he killed the deceased. The confession had been admitted in evidence. In his confession he stated that he returned at night to his house and did not see her. He only saw the child alone sleeping. As he went out to check he C heard a person running away and gave chase but failed to get him. When he returned inside he saw the deceased sitting on the bed and asked her who the person was he saw running. The deceased was alleged to have replied "sijui umemkimbiza na umeshindwa mwenyewe kumkamata sasa unamwuliza nani na mtu mwenyewe D umemwona?" - freely translated in means "I do not know. You have seen the person and failed to arrest him. Whom do you ask then?" The accused stated in his confession that he lost his temper and took the billhook which was nearby and hit the deceased intending to warn her and then realized that he cut the deceased on the forehead. He panicked when he came to know that he had killed the deceased and dumped the body into the latrine. E

The accused gave evidence on oath. He adopted his extrajudicial statement. His evidence does not differ in anyway with the confession.

The Republic have contended in their submission that there was no evidence of adultery. All that has been shown F was a suspicion that deceased had committed adultery. It was submitted that hearing a person run away does not show adultery.

The Republic also submitted that the words which deceased was alleged to have uttered were ordinary words and G could not have provoked the accused into killing.

The Republic also submitted that the accused relies on insanity as a defence but contended that the accused was not insane.
In reply learned defence counsel conceded that the accused has a weak defence in insanity but he submitted that the H accused had been provoked and relied on Manyeri s/o Mukonko v R. (1954) EACA 274. He further contended that the words which deceased had spoken could have provoked the accused. He stated that the accused has stated that deceased used to commit adultery and suspected that she had done so. I
1990 TLR p140
KAMIZOTO J
A In my summing-up note I stated to the assessors the defence of provocation exists where the following are established that the accused killed the deceased in the heat of passion, that the state of passion was caused by provocation of a sudden kind, provocation must consist of a wrongful act or insult which if done or directed to an B ordinary person he would have been deprived of his power of self-control.
Two gentlemen assessors found that the accused intended to kill the deceased. The first gentleman assessor is of the opinion that there was no evidence of adultery. He also stated that accused has known that deceased had committed adultery on three previous occasions. The third gentleman assessor concurred with the first assessor and C took into account the weapon used and the circumstance of the whole case. The second gentleman assessor stated that the killing was not intentional and gave his reason as to why he thinks that the defence of provocation stands.
D It is conceded that the accused did not see the alleged person let alone seeing the deceased committing adultery. He only suspected the deceased of having committed adultery. The issue is whether suspicion of adultery can afford a defence of provocation in murder cases . In the case cited by learned defence counsel of Manyeri s/o Mukonko E (supra) while the deceased and her husband the appellant had retired to bed a man came to the door of the hut they had been living in and spoke to the deceased, who told the man that she did not know him. The man asked what she meant and then the man stated that he had been living with the deceased. The appellant got out and F chased the man who ran away. The appellant got angry and speared the wife. It was held that the sudden discovery of a wife's adultery even if not finding her in fragrante delicto may in law be sufficient provocation to reduce an international killing to manslaughter. But this case can be distinguished on the fact from the present one. In Munkonko's case the paramour went to the door of the appellant and spoke to the deceased. The appellant heard G the man. Secondly the appellant heard the deceased talk to the man who being told by the deceased that she did not know him, the man stated that he had been living together with her. In the present case the accused did not see H the suspected paramour nor was there any conversation between the deceased and the alleged paramour. The only thing in common is the fact that in both cases the alleged paramour ran away.
I have called in aid the cases of Yokoyadi Lakora s/o Omari v.R [1960] EA 323 and R. v Ernest Mkumba I JIMILI [1979] LRT no. 27. The case deals with previous knowledge of adultery of a wife with a paramour. In both cases it was held that prior knowledge by a husband

of the adultery of his wife with a paramour does not bar him from raising the plea of provocation if the killing was A done upon finding the wife and her paramour in the act of adultery. In the present case the accused alleges that the deceased had committed adultery in similar circumstances three times but he had never seen the deceased committing adultery. Accordingly the principles laid down in the cases of Yokayadi and Ernest (above cited) B cannot be applied to this case.

I have considered the alleged statement by the deceased quoted above to see whether it could not have provoked the accused. Looking at it in a superficial manner the statement is innocent. But considered in the circumstances in C which the statement was uttered could have provoked the accused. The accused had come from husking coconuts. He knocked at the door expecting the deceased to open the door for him. Then he pushed the door open only to find his child sleeping alone in bed. The deceased was nowhere to be seen. The accused went out and as he was D searching around he heard foot steps of a person running. He chased the person and failed. He did not know who the person was. He turned inside and saw the wife sitting on bed. The accused asked who was the person he saw running. Instead of being civil she uttered the words she was alleged to have said. The reply could have infuriated the accused, as it actually happened and took the billhook and caused the deceased's death. In my view those E words uttered to an ordinary man in the circumstances which accused had would have provoked him to assault the deceased. In his confession the accused stated the he was seized with sudden passion and assaulted the deceased. It is true that he used a lethal weapon but it is not suggested that the accused had time to look for it. In his evidence F and confession made to the justice of the peace the accused appeared to have the billhook when he returned from his safari. I agree with the defence counsel that the statement alleged to have been uttered by the deceased was provocative in law and as the accused killed the deceased as a result of such provocation the killing was not G intentional. I concur with the second gentleman assessor that the killing was not intentional.

The accused was not insane. The depositions do not state that the accused had once suffered insanity. As the burden to establish the issue of insanity is on the defence on a balance of probability it was properly withdrawn as H being weak. In any case it does not raise any doubt in the prosecution case.

A lot has been said about the conduct of the accused after killing the deceased. I agree the conduct of the accused cannot be described in any way humane. The is far from saying that he was not provoked. I

A For the reasons I have given above I am satisfied that the prosecution have failed to establish that the accused killed the deceased intentionally. I am satisfied that the murder against the accused had not been proved. Consequently I acquit the accused of murder c/s 196 of the Penal Code but convict him of manslaughter o/s 195 of the Penal code.

B Order accordingly.

1990 TLR p142
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[zRPz]AERO HELICOPTER (T) LTD v F.N. JANSEN 1990 TLR 142 (CA)

Court Court of Appeal of Tanzania - Dar es Salaam
Judge Kisanga JA

D 6 December, 1990
Flynote
Civil Practice and Procedure - Court of Appeal Rules - Jurisdiction - Application to stay execution pending appeal to the E Court of Appeal of Tanzania - Whether High Court has concurrent jurisdiction with Court of Appeal of Tanzania to entertain the application - Court of Appeal Rules, 1979.
-Headnote
When an application for a stay of execution pending appeal to the Court of Appeal of Tanzania came for hearing in F the Court of Appeal of Tanzania preliminary objection was raised to the effect that the application was wrongly before it in that it ought to have been made to the High Court in the first instance. Counsel for the applicant and respondent referred to two apparently conflicting decisions of the High Court on the point.
G Held: (i) The inherent power of the High Court under section 95 of the Civil Procedure Code is exercisable where the law has made no provision governing the particular matter at hand;

(ii) once proceedings of appeal to the Court of Appeal of Tanzania have been commenced the High Court H could not properly apply section 95 of the Code for the simple reason that the proceedings are no longer in the court as required by section 2 of the Code,

(iii) once appeal proceedings have been commenced by filing notice of appeal to the Court of Appeal of I Tanzania, the law makes specific provision, relating to the stay of execution by the court, under rule 9 (2)(b) of the Court of Appeal Rules;
1990 TLR p143
KISANGA J

(iv) once appeal proceedings to this court have been commenced by filing notice of appeal, the High Court has A no inherent jurisdiction under section 95 of the Civil Procedure Code to order a stay of execution pending appeal to this court.
Case Information
Preliminary objection overruled. B
Maira, for the applicant
Majithia, for the respondent
[zJDz]Judgment
Kisanga, J.A.: There is before me an application for a stay of execution pending appeal to this Court. When the C application came on for hearing Mr. Majithia, learned counsel for the

respondent, took a preliminary objection that the application was wrongly before this court in that it ought to have been made to the High Court in the first instance. Mr. Maira, learned advocate for the applicant, resisted the objection and in the course of the submission D both counsel referred to two apparently conflicting decisions of the High Court on this point.

The application for a stay of execution was brought under rule 9(2)(b) of the Court of Appeal Rules which provides E that:

(a) subject to the provisions of sub-rule (1), the institution of an appeal shall not operate to suspend any sentence or to a stay of execution, but the court may

(b) in any civil proceedings, where notice of appeal has been lodged in accordance with Rule 76. order a F stay of execution. On such terms as the Court may think just.

In his objection Mr. Majithia submitted that the High Court has concurrent jurisdiction with this court to order a stay of execution pending appeal to this Court, and so in terms of rule 44 of the Rules this application ought to have been G made to the High Court first, which it has not. In support of the view that the High Court has concurrent jurisdiction in the matter he relied on the decision of the High Court in the case of Godes Ltd., v Nimrod E. Mkono - DSM High Court Civil Case No. 91 of 1989 the High Court had inherent jurisdiction under section 95 of H the Civil Procedure Code to stay of execution pending appeal to this Court. The learned counsel further relied on the decision of the Court of Appeal for Eastern Africa in the case of Ujagar Sing v Runda Coffee Estates Ltd. [1966] E.A. 263 also cited by Mapigano, J. in the Godes case. Again he referred me to a number of passages in I the commentaries by both Sakar and Mulla on section 151 of the Indian Code of Civil Procedure

A which is in pari materia with section 95 of our Civil Procedure Code and which confers inherent jurisdiction of the court. Relying on all this learned counsel vigorously contended that the High Court has inherent jurisdiction to stay of execution pending appeal to this court. In resisting the objection, Mr. Maira relied on the decision of the B High Court in the case of Saab-Scania A.B. t/a Saab-Scania Tanzania Branch v Mapinduzi Tailoring Co-operative Society Limited. - DSM Civil Case no. 85 of 1986 (unreported) where Bahati, J. ruled, in reference to Order 39 of the Civil Procedure Code, that the High Court had no jurisdiction to order a stay of execution pending appeal to this Court.

C Both Mapigano, J. and Bahati, J. rightly held that the High Court had no jurisdiction under order 39 of the Civil Procedure Code to order a stay of execution pending appeal to this Court. In this connection it is noted that Mapigano, J. in his ruling inadvertently cited Order 35 rule 5 of the Civil Procedure Code as being the provision D under which the application before him for a stay of execution was brought. However, a glance through the court case file clearly shows that the application before him and counsel submissions pertaining thereto were based on Order 39. In any case Order 35 is completely irrelevant and has nothing whatsoever to do with stay of execution. E Allowing for the inadvertence, therefore, Mapigano, J. and Bahati, J. share the view that Order 39 does not confer on the High Court jurisdiction to order a stay of execution pending appeal to this court, and as I have indicated sufficiently, I am also of the same view.

F Mapigano, J., however, went further and held that the High Court has such jurisdiction in the exercise of its inherent powers under section 95 of the Civil Procedure Code, and this is what counsel appear to regard as conflict of opinion between Mapigano, J. and Bahati, J. on the matter. However, the true position is that Bahati, J. did not decide on or consider the inherent jurisdiction of the High Court under section 95 to order a stay of execution G pending appeal to this Court.

That issue was never before him either as raised by counsel or by the court itself. To that extent I see no conflict myself, in as much as there is only the opinion of Mapigano, J. on the point.

H The question now falling for consideration, therefore, is a narrow one, and it is this: Does section 95 of the Civil Procedure Code confer jurisdiction on the High Court to order a stay of execution pending appeal to this court? It is pertinent here to glance at the provision of section 2 of the Civil Procedure Code which says:

I Subject to the express provisions of any written law, the provisions of this Code shall apply to all proceedings in the High Court of

the United Republic, courts of resident magistrate and district courts. A

This Code applies to stay of execution proceedings brought in the specified courts because I am not aware of any written law which makes provision to the contrary. However, upon perusal of the Code, I have not been able to B find any specific provision conferring jurisdiction on the High Court to stay of execution pending appeal to this Court. The question, therefore is: Can section 95 of the Code be construed, as urged by Mr. Majithia, as conferring on the High Court inherent jurisdiction for the purpose? C

It is to be remembered that the inherent power of the High Court under section 95 of the Code is exercisable were the law has made no provision governing the particular matter at hand Mr. Majithia, therefore, may be justified in submitting that the High Court has inherent jurisdiction here because, as I have observed, the Code makes no D specific provision for a stay of execution by the High Court pending appeal to this Court. But I should hasten to add that in my view such jurisdiction is limited and that it is not for all the time. I think that the High Court has such jurisdiction only so long as proceedings, of appeal to this Court have not been commended. Once such proceedings E have been commended, I think that the inherent jurisdiction of the High Court over the matter ceases.

I held this view for two reasons: First, once appeal proceedings to this Court have been commenced, I think that such proceedings do not come within the ambit of section 2 of the Code as set out above. That is to say, in my F view, they are proceedings in the Court of Appeal and not proceedings in the High Court to which, in terms of section 2, the provisions of the Code would apply. Therefore the High Court could not properly apply section 95 of the code for the simple reason that, in my opinion, the proceedings are no longer in that court. G

Secondly once appeal proceedings have been commenced by filing notice of appeal to this Court, the law makes specific provision, relating to stay of execution by this Court, under rule 9 (2) (b) of the Rules as reproduced above. So that there could no longer be excused for saying that the

High Court would exercise its inherent jurisdiction H because the law has made no provision governing the matter.

I have read the case of Ujagar Singh which was cited before me by Mr. Majithia, and which was also relied upon by Mapigano, J. for his decision. It is true that in that case it was held that the High Court of Kenya had inherent I jurisdiction to order a stay of execution pending appeal to the Court of Appeal for Eastern Africa. But that power was

A expressly conferred by rule 53 of the East African Court of Appeal Rules which were in force at the time. That rule provides that:

An appeal shall not operate as a stay of execution or of proceedings under the decision appealed from unless the courts B before or the court or a judge so orders and no intermediate act or proceedings shall be invalidated except so far as the court may direct.

C The reading of the rule make it plain that either the Court of Appeal or the High Court is empowered or authorized to consider whether or not to order a stay of execution pending appeal to the Court of Appeal. In other words rule 53 provides the source of authority for the court to be seized of the matter. And with reference to the High Court it means that in dealing with the matter, which is now properly or competently before it, it can exercise D its inherent jurisdiction or powers which it has under section 95 of the Code to decide whether or not to order a stay. But in the Tanzanian Court of Appeal Rules we have no corresponding provision to rule 53 above cited; we have no corresponding provision in the Appellate Jurisdiction Act either. In other words once appeal proceedings E to this court the High Court have been commenced, I could find no source of authority for the High Court to be seized of the matter; and if that court is not seized of the matter, it is difficult to see how it could proceed to exercise any inherent jurisdiction or powers which it has under section 95 of the Civil Procedure Code.

F It therefore follows that the decision in the case of Ujagar Singh is of no assistance here. That case is distinguishable in that there the High Court was seized of the matter with rule 53 being the sources of such authority, while in this case the High Court is not shown to have any sources of authority for it to be seized of the matter. The G same is true also of counsel's reference to the various passages in the commentaries by Mulla and Sakar on section 151 of the Indian Code of Civil Procedure relating to the inherent jurisdiction of the court to order a stay of execution. Such reference would be relevant and of assistance only upon showing that there is a provision of law, H akin, to rule 53 of the East African Court of Appeal Rules above cadet which authorises the High Court to be seized of the matter in the first instance. If that were shown, then it could validly be said that once the matter is competently before the High Court, then that court can exercise its inherent jurisdiction or powers which it has I under section 95 of the Civil Procedure Code to consider whether or not to order a stay of execution pending appeal to this court. But in the absence of any such

enabling provisions, then there is no linkage between the inherent jurisdiction of the High Court under section 95 of A the Civil Procedure Code and proceedings relating to a stay of execution pending appeal to this Court, to which proceedings that said section 95 of the code has no application. It is for these reasons that I differed with Mapigano, J. and take the view that once appeal proceedings to this Court have been commenced by filing notice B of appeal, the High Court has not inherent jurisdiction under section 95 of the Civil Procedure Code to order a stay of execution pending appeal to this Court.

Now applying this analysis to the situation at hand, the applicant' s affidavit in support of the notice of motion, clearly states that notice of appeal to this court has already been given, and this had not been contradicted. C Therefore in terms of rule 9(2)(b) of the Rules, as reproduced above, this court has jurisdiction over the issue of a state of execution pending the appeal to itself. On the other hand, and for the reasons I have endeavoured to state, I could find no support for Mr. Kajithia's contention that the High Court has concurrent jurisdiction with this court in D the matter.

Consequently rule 44 which requires an application to be made in the first instance to the High Court is of no application here. I am therefore satisfied that the application for a stay of execution completely before this court. E

In the result the preliminary objection is overruled with costs to the application.

Nyalali CJ.: On the basis of the undisputed information brought to the attention of the court to the effect that the F Applicant AERO HELICOPTER (T) LTD. has withdrawn instructions from Mr. Maira and Co. as per notification filed in court on 1st April, 1993 and as per exchequer Receipt No. 215166 of same date, it is hereby directed that Maira and Co. cease to represent the applicant hereafter in these proceedings unless fresh instructions are given. G

Order accordingly.

990 TLR p148

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[zRPz]YOHANIS MSIGWA v REPUBLIC 1990 TLR 148 (CA)

Court Court of Appeal of Tanzania - Mbeya

Judge Makame JJA, Omar JJA and Mnzavas JJA

B September, 1990

Flynote

Evidence - Evidence of a single witness in a murder charge - Whether it requires corroboration before conviction - S. 143 Evidence Act 1967.

-Headnote

C Before the High Court of Tanzania sitting at Njombe was Yohanis Msigwa, the appellant, charged with the offence of murder. The trial court convicted him of the offence and condemned him to death.

Dissatisfied with the conviction and the sentence, the appellant through the services of Mr. Mwakilasa, learned D counsel, appealed to the Court of Appeal of Tanzania raising among other grounds, that since P.W.1 was the only eye witness, her evidence required corroboration as a matter of prudence given gravity of the offence.
Held: (i) As provided under section 143 of the Evidence Act 1967, no particular number of witnesses is required E for the proof of any fact. What is important is the witness's opportunity to see what he/she claimed to have seen, and his/her credibility;

Case Information
Appeal dismissed.
F Mwakilasa, for the appellant
Sengwaji, for the respondent
[zJDz]Judgment
Makame, J.A.: In November 1983, at a village called Maliwa in Makete District, Iringa Region, a man known as G Kibweri Msingwa was severely cut five times: on the face, the ears, the neck and the chest. According to the postmortem examination report the deceased died of these injuries and the consequent haemorrhage. The High Court sitting at Njombe (Mwaikasu, J) was satisfied that the appellant Yohanis Msigwa was the person who H mortally wounded the deceased and that he did so with malice aforethought. The appellant was accordingly convicted for murder and condemned to death. He is appealing to us against the decision and in the effort he is being advocated for by Mwakilasa, learned counsel. In resistance of the appeal Mr. Sengwaji, learned Senior State I Attorney, argued on behalf of the Republic.
The appellant and the deceased were cousins and PW1 Teresia
1990 TLR p149
MAKAME JA
Malube, the star witness, was the wife of the deceased. On the fateful day, according to PW1, the appellant A accosted PW1 in the village and asked her the whereabouts of her husband. He explained why he was looking for the deceased: A local medicine man had told him, the appellant, that the deceased was a wizard so he wanted to talk things over with the deceased so as to avoid antagonism. This conversation was allegedly in the present of one B Lubaso, a brother of the deceased, who was unhappily dead by the time the case came up for hearing so he was not available to testify. PW1 told the appellant where the deceased was at an abandoned house which they were using as their granary, and from which she had just come. When PW1 was going back to the abandoned house the C appellant walked past her and went to where the deceased was. He stabbed the deceased in the full view of PW1 who was a few meters from them. In her early report to both PW3 Feliski Sanga, a woman whose house was some thirty paces away, and PW4 Enock Sanga the Village Secretary, PW. 1 implicated the appellant. We need D not here comment on the confining of names said to have been introduced by PW3 in her statement to the Police for that was resolved by the trail Court and is no longer the subject matter of controversy, except we desire to point out that it is not quite the thing to do to make use of the alleged statement by PW3 as did the learned trial judge, E without such statement

being tendered in evidence. Be it as it may, the appellant was arrested at Makambako, according to him on 29th December, 1983 and was eventually tried and found guilty of murder as aforesaid.

Mr. Mwakilasa urged two grounds of appeal. The first that the evidence adduced was not enough to base a F conviction of murder on, and secondly that the appellants alibi should have been accepted. Mr. Mwakilasa submitted that as PW1 was the only eye witness, her evidence required corroboration as a matter of prudence for a crime so grave. He suggested that PW1 testified falsely against the appellant because the appellant had put PW1 his daughter, his niece, in the family way. For good measure Mr. Mwakilasa further suggested that it is possible that G PW1 herself was the deceased's killer. Mr. Mwakilasa also wonders why, if PW2.'s story were true, the appellant was not arrested until some seven weeks later, whereas Makambako, where he was picked up by the Police, is just in the next door district of Njombe. Mr. Songwaji responded to this: He submitted that PW. 1 knew the appellant H before and the appellant conceded as much. PW1 said she knew of no grudges, and the pregnancy story was not put to PW1 for her to admit or deny; in any event the appellant says the matter was discussed and settled. As for the delay in arresting the appellant Mr. Dengwaji surmised that it I

A could well have been because the appellant was a pottery businessman at Makambako with no firm address.

As aforesaid, Mr. Mwakilasa also complained about his client's alibi. He submitted that although no notice of it was given as required of the Defence, the Prosecution was aware of its existence by virtue of the fact that the appellant B told the investigating officer, PW5, Inspector Benjamini Mwakatika, that he was not involved in the murder, that is; an alibi was implicit in the utterance.

We are able to say at the outset, with respect, that Mr. Mwakalasa's submission on the defence of alibi is decidedly C thin. Also in urging us to say that PW1 might have been the killer, Mr. Mwakilasa was truly scraping the barrel. It is a wild and barren theory, without the slightest foundation in the evidence on record.

The Prosecution was silent as to when the appellant was arrested so we must go by the appellant's own assertion, D which was not controverted, that he was not arrested until 29th December 1983 that is some seven weeks after the event. Mr. Mwakilasa did not come out more boldly but we think his oblique insinuation was that PW1 could not have implicated the appellant on the day of the incident otherwise the appellant would have been arrested a lot E earlier. We are unable to go along with learned counsel on this. We are not at all surprised that the appellant was not apprehended sooner than he was because, on his own account, he did not go back to the village since he went to Makambako in 1976 that is seven years previously. It is therefore possible that the villagers including PW 1 did F not know where he was living. Indeed PW 1 said that the appellant was not a frequent visitor and we think it is significant also that even PW4 Sanga, the village Secretary and so a man in authority at the village, did not at all know the appellant although PW4 had lived in the village since 1981.

G There was admittedly a lone eye witness in this case. Her evidence is not however detracted from because of that fact alone. As provided under Section 143 of the Evidence act, of course no particular number of witnesses is required for the proof of any fact. What were important here were PW1's opportunity to see what she claimed to have seen, and her credibility. Mr. Mwakilasa concedes it was broad daylight and, as Mr. Sengwaji remarked, the H learned trial judge was positively impressed by PW1 as a witness. We ourselves find no reason to doubt the veracity and reliability of PW1's testimony. We are satisfied that the appellant was quite properly convicted on the evidence and we accordingly dismiss the appeal.

I We wish to add one observation. All the three assessors who sat

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MAKAME JA

with the learned judge advised that the appellant was not guilty. As we have had occasion to say before, it is a rule A of practice that when a trial judge departs from the unanimous views of his assessors. Albeit not binding, he should state his reasons for doing so. We have elsewhere referred to this as the Segesela Rule with reference to the judgment in the Court of Appeal Criminal Appeal No. 13 of 1973 Charles Segesela v R an appeal from Tanzania. B In the present case the learned trial judge gave convincing reasons for disagreeing with his assessors and the Segesela Rule was in our view clearly observed.

Appeal dismissed. C

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Cases Reported
1989 TLR p1
A
[zRPz]STAR SERVICE STATION CO. LTD. v TANZANIA RAILWAYS CORPORATION 1989 TLR 1 (HC)

Court High Court of Tanzania- Tabora
Judge Chipeta J

18 January, l989 B
Flynote
Contract - Exclusion clause - Whether must be drawn to the attention of the other party.
-Headnote
Plaintiffs sued defendants claiming damages for loss of goods consigned to the latter for transportation. Defendants raised a preliminary point arguing that they were not liable C under the "Conditions of Carriage" contained in their tariff book which stated that "dangerous goods", such as petroleum products, are carried at owner's risk as the defendant are not common carriers. D
Held: In cases in which one party to a contract inserts a term excluding or limiting liability which would be otherwise his, the question whether or not the other party was made aware of such clause and accepted it is often a question of fact to be ascertained from the evidence adduced. Rarely can the question be dealt with as a preliminary E point.
Case Information

Preliminary objection overruled.
Case referred to. F

1. Thornton v Shoe Lane Parking Ltd [l971] l All ER 686.

[zJDz]Judgment

Chipeta, J.: This is a ruling on a preliminary point. The plaintiffs, M/s Star Service Station Co. Ltd, have filed a suit against the defendants, the Tanzania Railways G Corporation in which they claim damages for loss of goods consigned to the defendants by the plaintiffs for transportation from Dar es Salaam to Shinyanga.

The defendant's preliminary point raised was that based on an exclusion or limiting clause as to the defendant's liability. The defendants asserted that they can in no way be H liable by virtue of the "conditions of carriage" contained in their "Tariff Book" which state that "dangerous goods" as petroleum products (the goods in question in this case) are carried at "owner's risk" as the defendants are not "common carriers" of such goods.

To my mind, there are cases in which such preliminary points may be upheld. But I before such a submission can be upheld, certain

1989 TLR p2

CHIPETA J

principles of law must be carefully examined. The existence of a valid contract A presupposes that the contracting parties were ad idem as to the terms of the contract and that each of them willingly accepted those terms of the contract. In cases in which one party to a contract inserts a term excluding or limiting liability which would otherwise be his, the question whether or not the other party was made aware of such B exclusion terms of liability and accepted them is often a question of fact to be ascertained from the evidence adduced. Such cases may also raise the question as to whether or not such exclusion terms or clauses render the given contract void for unreasonableness of the given exclusion clauses. C

In deciding such cases therefore, it is necessary to enquire whether the other party was given reasonable notice of the exempting or exclusion clauses. As Lord Denning, M.R. pointed out int he case of Thornton v Shoe Lane Parking Ltd. [l971] I All E.R. 686 at page 105: D

It is no use telling the customer that the ticket is issued subject to some "conditions" or other without more, for he may reasonably regard "conditions" in general as merely E regulatory, and not as taking away his right unless the exempting condition is drawn specifically to his attention (Emphasis added).

Lord Denning, M.R., went on:

I do not pause to inquire whether the exempting condition is void for unreasonableness. F All I say is that it is so wide and so destructive of rights that the court should not hold any man bound by it unless it is drawn to his attention in the most explicit way. In order to give sufficient notice, it would need to be printed in red ink with a red hand pointing G to it, or something equally startling.

In the present case, in the absence of evidence, the court would not be in a position to know whether the exempting clauses were drawn to the attention of the plaintiffs in the H most explicit way or whether or not the defendants are not common carriers of petroleum products,

and so on. All these are questions of fact which can only be determined from evidence to be adduced by the parties.
For these reasons, the preliminary point fails. The case will proceed to trial and be I determined on the merits.
Order accordingly.
1989 TLR p3
A
[zRPz]RAMADHANI MWENDA v REPUBLIC 1989 TLR 3 (HC)

Court High Court of Tanzania- Tabora
Judge Chipeta J

28 January, 1989
Flynote
Criminal Practice and Procedure - Sentencing - Whether sentence excessive - Factors to B be taken into account - Financial position of offender - Fine option - Youthfulness of offender - Student offender.
-Headnote
This matter was admitted to revision on the ground that the sentence imposed on C accused was manifestly excessive. The accused person, a student in a secondary school, was convicted of the offence of unlawful wounding c/s 228 (1) of the Penal Code. The facts revealed that the accused assaulted a fellow student in a classroom with a penknife and caused the victim to sustain a cut wound. The accused was D sentenced to pay a fine of shs.7,000/= or nine months imprisonment and to pay shs.3,000/= as compensation.
Held: (i) A sentence must fit the crime and guilt as well as the circumstances of the offender; E

(ii) if a sentencing court is minded to impose a sentence of fine as an option to a custodial sentence, such court should take pains to inquire into the financial means of the accused; (see Ally and others v R. [l972]. HCD n. 115); F

(iii) youthful offenders, such as the accused person who was a student, should be treated with some measure of lenience; (R v Alein Mwaneze [l972] HCD n. 226);

(iv) need for deterrent sentence to discourage indiscipline in schools is not the only factor to be taken into account. In assessing a sentence, all relevant factors must be taken into account; G

(v) the sentence of fine imposed on the accused person by the trial court was so manifestly excessive as to result in injustice.
Case Information
Sentence set aside. H
[zJDz]Judgment
Chipeta, J.: This matter was admitted to revision on it appearing to this court that the sentence imposed on the accused person was manifestly excessive.

The record reveals that accused person, a student in a secondary school was convicted of the offence of unlawful wounding c/s 228 (1) of the Penal Code. The facts reveal I that the accused
1989 TLR p4
CHIPETA J
assaulted a fellow student in a classroom in unclear circumstances with a penknife and A caused the victim to sustain a cut wound 1.5cm long, 1.25cm wide and 1.5cm deep.
On conviction, the accused person was sentenced to pay a fine of shs.7,000/= or nine months imprisonment and to pay shs.3,000/= as compensation. B
This court has often held that a sentence must fit the crime and guilt as well as the circumstances of the offender. If a sentencing court is minded to impose a sentence of fine as an option to a custodial sentence, such court should take pains to inquire into the C financial means of the accused person, for if that is not done, a court might find itself imposing on an accused person a sentence of fine whose result would be to render the option of a fine illusory. (See Ally and Another v R., [l972] HCD n. 115; and R. v Sima, [1972] HCD n. 182), It has also been held that youthful first offenders should be D treated leniently (see R. v Juma s/o Rashidi, [l972] HCD n. 185), and that an accused person who is a student should likewise be treated with some measure of leniency (see R. v Aleni Mwamenze [l972] HCD n 226).
In the present case, the learned magistrate took into account the fact that the accused E person was a first offender. He, however, said that "a deterrent sentence" was called for "to be a lesson to the accused person and other people." I certainly agree that violence and indiscipline in schools must be discouraged. But in this case, that was not the only factor to be taken into account. In assessing a sentence, all relevant factors F must be taken into account. If that is not done, an appellate court or a superior court acting in revision would be entitled to interfere with such a sentence. (see Silvanus Leonard Nguruwe v Republic [l981] TLR 66).
In this case, and as pointed out above, the accused was a student in a secondary G school. He is aged 20 years, and he is a first offender. As a student, he could hardly be expected to have an income which could enable him to raise shs.10,000/= at a moment's notice! Besides, the injury which the victim sustained can hardly be said to have been serious. These were very strong mitigating circumstances to which the H learned trial magistrate did not address his mind. In this, with respect, he erred.
For these reasons, I am of the settled view that the sentence of fine imposed on the accused person by the trial court was so manifestly excessive as to have resulted in injustice. The same is accordingly hereby set aside, and substituted therefor is a I sentence of a fine of shs.1,000/= (one thousand) or one month imprisonment.
1989 TLR p5
If the fine has been paid, the balance of shs.6,000/= (six thousand) shall be refunded to A the accused person forthwith. The order of compensation shall remain undisturbed.
Order accordingly.
1989 TLR p5
B

[zRPz]METAL PRODUCTS LTD v MINISTER FOR LANDS & DIRECTOR OF LAND SERVICES 1989 TLR 5 (CA)

Court Court of Appeal of Tanzania- Dar Es Salaam
Judge Makame JA

8 February, 1989 C
Flynote
Civil Practice and Procedure - Notice of motion - For extension of time for application for leave to appeal and for leave to appeal - Whether inadevertence is sufficient reason for D the delay - Records do not show that oral or informal applications were made.
-Headnote
This application arises out of a dispute over a piece of land. The applicants unsuccessfully applied before Msumi, J. for orders of certiorari and prohibition E challenging the acts of the Minister for Lands and Director of Land Services who had purportedly acquired the plot originally allocated to the applicants and reallocated it to Globe Tiles. Seven days after the decision, Miss R.H. Sheikh for the applicant filed a Notice of Appeal against that decision. An application was then made by applicant for F extension to apply for leave to appeal. Mnzavas, J.K. dismissed the application.
In the Court of Appeal, Mr. Jadeja for the applicant, filed Notice of Motion for an extension of time for an application for leave to appeal and for leave to appeal. G
The Court of Appeal dismissed both applications with costs.
Held: Leave to appeal, which was necessary in the present matter, has to be sought within fourteen days of a decision. Under Rule 43 of the Court of Appeal Rules, such H leave may be applied for informally. This informal application must be made when the decision against which it is desired to appeal is given. Categories of explicable inadvertence causing delay to make an application do not include ignorance of procedure, or blunder by counsel.
Case Information
Both applications dismissed. I
1989 TLR p6
MAKAME JA
Jadeja for applicant. A
[zJDz]Judgment
Makame, J.A.: This application arises out of a dispute over a piece of land, Plot No. 22 Vingunguti Industrial Area in the City of Dar es Salaam, allocated at various times to the applicants, Metal Products Ltd., and to another company Globe Tiles (T) Ltd. The B applicants unsuccessfully applied before Msumi, J. for orders of Certiorari and Prohibition, challenging the acts of the present respondents who had purported to acquire the plot that had been allocated to the applicants and had it re-allocated to Globe Tiles to whom it had allegedly been allocated at first. C

The applicants were dissatisfied with the decision of Msumi, J. which he made on 11th August, 1987 and seven days later Miss R.H. Sheikh, who was appearing for the applicants, filed a Notice of Appeal against the said decision. Thereafter an application D was made on 23/9/87, for an extension of time to apply for leave to appeal. This was heard by Mnzavas, J.K. and on 26th July, 1988 he dismissed the application.

The Notice of Motion now before me, filed by Mr. Jadeja, learned advocate for the applicants and resisted by Mr. Warema, learned State Attorney on behalf of the E respondents, is for an extension of time for an application for leave to appeal, and for leave to appeal. Mr. Warema has urged that the application for leave is incompetent as it ought first to have been made to the High Court as is required under Rule 44 of the Tanzania Court of Appeal Rules, and none was made. He also submitted that Miss F Sheikh's ground - inadvertence - was properly held by the High Court as not amounting to sufficient reason for the delay.

Leave to appeal, which was necessary in the present matter, has to be applied for within fourteen days of the decision. Mr. Jadeja is perfectly right under Rule 43 such G leave may be applied for informally. This informal application must be made "when the decision against which it is desired to appeal is given".

Miss Sheikh sought to persuade the High Court that she did tell Msumi, J. that she intended to appeal. Mnzavas, J.A. was not impressed: He said that the record did not H bear her out. Mr. Jadeja has submitted that it is possible the learned J.K. was misled by the cycostyled copy of Msumi, J.'s Judgment (which did not indicate what Miss Sheikh had said - that "We give Notice of Appeal to Court of Appeal"). Looking at Annexure A in support of Miss Sheikh's affidavit in the present Notice of Motion it is I clear that Mr. Jadeja is obviously right - Miss Sheikh did indicate her intention

to appeal, whether as Mr. Warema says, she was weeping in the process; or not. But A what was the effect of this? Was Rule 43 complied with? Mr. Jadeja submitted thus:

> contend an informal application - 'I apply for leave to appeal' - whatever the words - would B refer to leave to appeal, No informal application for Notice to appeal is necessary.

Of course Mr. Jadeja is right again, but only as far as he goes. "Whatever words" used in clear connection with the application for leave to appeal - Yes - but not any words. C "Whatever words", without the qualification indicated is too wide a proposition. What Miss Sheikh did on 11th August, 1987 was to indicate her intention to appeal, which she was free to do, and indeed she made good her word when she filed her Notice on 18th August 1987. How from what transpired in the presence of Msumi, J. Miss Sheikh was able to assume that leave was granted I find utterly startling. Why D should she make such an assumption? Part of para 10 of Miss Sheikh's affidavit goes thus:

> Mr. Justice Msumi delivered the judgment on 11th August, 1987 and I immediately told the E learned judge that I wanted to appeal. There was no objection coming from counsel for the Respondents and I saw the learned judge writing down something which I assumed to be the

granting of leave to appeal. In the sure knowledge that I had been allowed to appeal I F proceeded to file the annexed Notice of Appeal ...
With the greatest respect, such 'sure knowledge' was baseless and ill-founded.
Mr. Jadeja furnished me with a formidable list of authorities - indication of his usual G industry - and ably took me through some of them: From Gatti v Shoosmith, right up to I.F.M. F. Simon Manyaki. They show the evolution of thought - from special cause to sufficient reason - and the courts' persistent dislike to have their discretion fettered in these matters. We still have to consider - whether there was sufficient reason for the H delay in taking the steps Miss Sheikh should have taken. The delay must relate to the period right from the time Msumi, J. delivered his judgment, not just from the time Miss Sheikh says she discovered her blunder. Quite frankly, the reason here is Miss Sheikh's ignorance of the procedure, or her blatantly unwarranted and erroneous assumption I that she had been

granted leave. This is outside the category of explicable inadvertedness and cannot be A condoned. Otherwise the rules would be pointless - they were made to be followed and their broken can only be excused if sufficient reason is shown.
I respectfully agree with Mr. Jadeja, and I find support for this even in the ruling by the B learned J.K. himself, that there were in effect two applications made to the High Court - for leave and for extension of time. In the particular circumstances of this case Mr. Jadeja has a point that the refusal to extend time was in substance refusal to grant leave also. Mnzavas, J.K. did make reference to the application for leave. For myself, I C am not persuaded to hold that it is just what leave should be granted. The record shows that on 30th June, 1987 Miss Sheikh merely asked for more time in which to prepare herself and that she also prayed for leave to file and reply to the respondents' counter affidavit as she had discovered some facts which were not pleaded in her D affidavit. She did not indicate the subject matter of her discovery. Her application was dismissed. She should have researched for her case more carefully in the first place. Some of the things she is now alleging in her affidavit could not be considered by the Court of Appeal without calling for additional evidence, nor have I the means to know E the truth or otherwise of them at this eleventh hour. In the exercise of my discretion I refuse to grant leave to appeal and I have indicated why I also feel, though for rather different reasons, why I also would not allow the application to extend time.
F Order accordingly.

G
[zRPz]REPUBLIC v MUHIDIN TWALIBU 1989 TLR 8 (HC)

Court High Court of Tanzania- Mtwara
Judge Maina J

9 February, 1989

Flynote

Criminal Practice and Procedure - Settlement out of court - Matters to be settled out of court - Whether burglary and stealing are matters capable of being settled out of court - S.163 of Criminal Procedure Act.

-Headnote

The accused was charged in the District Court with burglary and stealing. He denied the charge, and after a few adjournments, the

1989 TLR p9

MAINA J

prosecutor informed the court that the accused was married to the complainant's daughter. The prosecutor requested that the matter be settled out of court. The trial magistrate, purporting to act under s.163 of the Criminal Procedure Act, ordered that the case be settled out of court. The case was admitted to revision.

Held: (i) Before applying section 163 of the Criminal Procedure Act, the court has to consider whether the offence is one of common assault or of personal or private nature;

(ii) the offence of burglary and stealing is not one of common assault or of a personal or private nature and therefore does not fall within the powers of the court to promote reconciliation.

Case Information

Case remitted for trial.

Sangawe, State Attorney, for the Republic.

[zJDz]Judgment

Maina, J.: The accused, Muhidin Twalib, was charged in the District Court at Kilwa with burglary and stealing. He denied the charge. After a few adjournments, the prosecutor informed the court that the accused was married to the complainant's daughter, and he requested that the matter be settled out of court. The District Court agreed and made an order that the case be settled out of court. This case was admitted to revision because it appeared that the District Court acted without jurisdiction.

The learned district magistrate made his order under section 163 of the Criminal Procedure Act which provides as follows:

In the case of proceeding for common assault or for any offence of personal or private nature, the court may, if it is of the opinion that the public interest does not demand the infliction of the penalty, promote reconciliation, and encourage and facilitate the settlement, in an amicable way, of the proceedings or on terms of payment of compensation or other term approved by the court, and may thereupon order the proceedings to be stayed.

It seems to me that the court can promote reconciliation and encourage settlement in a case of common assault or for an offence which is of personal or private nature. The relationship between the accused and the complainant is not relevant. What the court has to consider, before applying section 163 of the Criminal Procedure

1989 TLR p10

Act, is whether the offence is one of common assault or of personal or private nature. If A the answer is in the affirmative, then the court may proceed to promote reconciliation and encourage settlement. In this case, the learned district magistrate conceded that the offence was serious. It was of common assault. The charge was burglary and stealing. B That is not an offence of personal or private nature. Burglary is a serious offence and therefore it is not an offence in which the court could promote reconciliation Section 163 of the Criminal Procedure Act was not applicable in this case.

The order of the District Court that the case be settled out of court is set aside. C

It is ordered that the case be remitted to the District Court for trial before another magistrate.

D Order accordingly.

1989 TLR p10

E

[zRPz]GEORGE MINGWE v REPUBLIC 1989 TLR 10 (HC)

Court High Court of Tanzania- Mtwara

Judge Kazimoto J

13 February, 1989

Flynote

Criminal Practice and Procedure - Identification - Of stolen property by colour - Value of F such evidence.

Criminal Law - Doctrine of recent possession - Its applicability.

Criminal Practice and Procedure - Judgment - Contents of - S. 312(1) of Criminal Procedure Act, 1985. G

-Headnote

On 26.2.87 the house of the complainant was broken into and two shirts, a pair of shoes, a belt, a pair of trousers and other articles were stolen. The thief, or thieves, were unknown. On 23.3.87 the appellant was seen by the complainant wearing a shirt, a belt and a pair of shoes which the latter claimed to be his. He was arraigned and H convicted of house breaking and theft c/ss 294(4) and 265 of the Penal Code. Adducing evidence in the District Court, the complainant neither described by make or any other mark the articles which he claimed to be his, but claimed to recognise the shirt by its colour and stripes; the belt and the shoes by colour. I

1989 TLR p11

KAMIZOTO J

Held: (i) Identification of stolen property by colour alone is the weakest sort of A evidence, and the accused ought not to have been convicted on such evidence alone;

(ii) the applicability of the doctrine of recent possession depends on the type of the stolen property being identified;

(iii) a judgment must contain the points for determination, the decision thereon B and the reasons for the decision.

Case Information
Appeal allowed.
[zJDz]Judgment
Kazimoto, J.: When the appeal came up for hearing and having heard learned state C attorney who declined to support the conviction and having considered the grounds of appeal by the appellant I quashed the appellant's conviction, set aside the sentence imposed and ordered his immediate release from prison. I reserved my reasons which I now give. D
The appellant was convicted of house breaking and theft c/ss 294(1) and 265 of the Penal Code and sentenced to five years jail for house breaking and two years imprisonment for stealing. He appealed.
On 26.2.87 the house of the complainant (PW1) was broken into and two shirts, a pair E of shoes, a belt, a pair of trousers, children's clothing and ten pairs of khanga were stolen. The thief or thieves were unknown.
On 23.3.87 the appellant was seen by PW1 wearing a shirt, a belt and a pair of shoes F which complainant claimed to be his. This led to the arrest of the complainant and the subsequent charges and convictions at the trial.
In his evidence PW1 neither described by make or any other mark, the properties which he alleged to be his. According to his evidence he recognised the shirt by its yellowish colour and stripes and the belt and shoes by colour. Even if colour could be G said to be a special mark the type of colour in respect of the belt and shoes should be stated in evidence. And it has been held in numerous authorities that identification of stolen property by colour alone is the weakest sort of evidence and an accused person H ought not to be convicted on such evidence.
A judgment which does not conform with the provisions of section 3l2(1) of the Criminal Procedure Act 1985 is not a judgment in law and will certainly run the risk of being quashed. It has been said now and again that a judgment to be a judgment must I "contain the point or points for determination, the decision thereon and the
1989 TLR p12
reasons for the decision." Having summarised the evidence for both the prosecution and A the defence the learned Principal District Magistrate had this to say:

> Indeed on the evidence before me I am satisfied that the accused was found wearing some of B the complainant's property, about 27 days later (shoes, a belt and shirt).
>
> This is not a type of property which could easily pass from one hand to another in such a short period. The accused must have been the breaker and the thief.

The appellant was not charged with being "found wearing or in possession". At issue is C the identity of the stolen property. The learned magistrate did not direct his mind to that issue. He did not say on what he was "satisfied" that the appellant was the breaker D and the thief. Further it was premature to invoke the doctrine of recent possession. That doctrine depends on the stolen property being identified. As it was not identified by the complainant it cannot be said it is the same property which had been stolen from him.
And to say that the type of property cannot pass hands within a month in todays E business boom of second hand clothes popularly known as "mitumba" can hardly be convincing. Clothing

can easily pass hands within a few days. They are not the type of things which could fail to get a willing and able purchaser.
It was for these reasons that I allowed the appeal and made the subsequent orders. F
Appeal allowed.
1989 TLR p12
G
[zRPz]REPUBLIC v SIWAJIBU KIBAYA 1989 TLR 12 (HC)

Court High Court of Tanzania- Dar Es Salaam
Judge Mapigano J

15 February, 1989 H
Flynote
Evidence - Of spouse - Scope of application of section 130 (1) of the Evidence Act, 1967 - Construction.
-Headnote
A couple lived together in concubinage for three years, begot two children and I entertained the desire and hope of going through a
1989 TLR p13
MAPIGANO J
ceremony of marriage in the near future. The court considered whether a "spouse" under A such circumstances in Tanzania is under duty to testify against the other "spouse".
Held: Where the line between a valid marriage and concubinage is obscure and where cohabitation takes on the typical features of a durable establishment a spouse of such B cohabitation is not under duty to testify for the prosecution.
Case Information
Order accordingly.
Luanda, for the Republic C
Lugua, for the accused
[zJDz]Judgment
Mapigano, J.: This case concerns the death of a man called Athumani Rajabu which took place on 29th day of February, 1988, in the Bagamoyo hospital. The deceased D aged 33 years had sustained an injury in the leg a few hours back, described in the autopsy report as a deep cut wound involving large arteries and veins, and alleged by the prosecution to have been inflicted by a knife. The accused Siwajibu d/o Kibaya is facing a murder charge from the alleged stabbing and she maintained that the charge is a E frame-up.
At the material time the accused was living together with a man called Tabu Mohamed in a quasi matrimonial situation at Magomeni Nianjema in the township of Bagamoyo, and there were issues out of their three-years cohabitation, and the two were anxious to F contract a legal

marriage. It is clear from the evidence that the death of Athumani Rajabu had some reference to that cohabitation.

The sequence of events culminating with the death of Athumani started at the homestead of Shabani Mkombozi (PW6), a neighbour of Tabu Mohamed and the deceased. The G incident involved the accused, Tabu and a girl called Rukia Selemani otherwise named Azimio (PW1). The accused was manifestly and poignantly given to understand that Rukia was intruding into the cohabitation.

Rukia was not a resident of Nianjema. She lived at Lugoba and she came to Nianjema H to attend the funeral and the hitima of a near relation at the home of Rashidi Yusuf. During her stay in Nianjema she happened to have struck up an amatory relationship with Tabu Mohamed, the man who was living on the other side of the road. She stands in a near blood relation to the deceased as well I

as to Selemani Bahatisha and Omari Yusuf who gave evidence on the side of the A prosecution as PW2 and PW3, respectively.

On 28/2/88 at around 9 p.m. the accused found Tabu and Rukia in the compound of Shabani Mkombozi. She accused Rukia of having a love affair with Tabu and she scolded Tabu and alternated with Rukia. That was common ground. But the accused B had some interesting details to add. She said that she took the two in the act of tender embrace, Rukia leaning against the wall, Tabu resting his hands on her shoulders, fondling and kissing each other. She brought Tabu back to their house where the C tongue-lashing went on in the verandah. It came to a point, before long, which Tabu could not bear the ordeal any longer and he scurried away and vanished.

The prosecution evidence has depicted the accused as one who had been driven into a raving fury. Soon after returning to her house she fetched a knife and went to the D verandah of Rashid Yusufu, where Rukia was standing, to take vengeance on her. In the state of such fury she hurt Amina Rajabu and missed stabbing Omari Yusufu (PW3), when the two tried to tackle her in order to disarm her, and according to PW3, she declared that she had decided to slay a person.

When the deceased came and made a similar bid, at the same place, the accused E stooped and gave him the fatal blow. The prosecution contention is that she had no excuse whatever to do so. Their contention is also that exhibit P5 is the knife which the accused used to commit the offence, but the defect which obtains in their case is that exhibit P5 was not identified by any of the eye witnesses.

F On the other hand the case for the accused is that she was a victim who was later cast as the aggressor. To rub salt into injury, as the idiom goes, Rukia had the audacity of storming into her yard to heap scorn upon her. Rukia scoffed at her fit of passion, telling her that her vagina was frigid and that was why Tabu was smitten with another woman. G

That was not the end of her torments. Members of the family of Rukia, including the deceased, descended upon the yard and set upon her for "putting Rukia to shame." One seized her by the

throat while the others treated her to some kicks and she got injured. H In due course a man came and interceded. The man remonstrated with her attackers and warned them that she might lodge a complaint with the police against them. She denied that she stabbed the deceased. She claimed that she did not know how the deceased came to sustain the injury, pointing out, I think correctly, that there was darkness and that the row had pulled a crowd. I

1989 TLR p15

MAPIGANO J

She claimed that the report that was later laid against her to the police was meant to A forestall her complaint and make her suffer. There is an item in the testimony of constable Boniface (PW5) which tends to confirm that she had been given a beating.

All the assessors have gone by the version of the accused, and, accordingly, they have stated the opinion that she did not commit any offence and that she should be cleared of B the charge.

I fully apprehend that the decision of this case depends largely upon the credibility of the witnesses, and that I have to approach the evidence of PW1, PW2 and PW3 keeping in mind that they are closely related to the deceased. I have come to the conclusion that it C is unsafe to believe their testimony that the accused was responsible for the death of the deceased.

For one thing, the three witnesses have lied when they alleged that the deceased sustained the leg injury at the home of Rashid Yusufu. The evidence of Shabani D Mkombozi, the one witness I consider to be independent and impartial, gave them that lie. The witness stated that he found the deceased writhing in pain at the home of Tabu Mohamed.

For another, the evidence of the two witnesses, i.e. Shabani Mkombozi and Constable E Boniface, also tends to land some credence to the accused's story that Rukia and her relations came to her house to violence.

Furthermore, we have been urged to believe that the accused decided to avenge her wounded feelings on the deceased, when the evidence does not show that there was F nothing to stop her from doing the same on Rukia, to whose misbehaviour her fury had a direct reference. I should say that this is a thing I have found hard to accept.

In the final analysis the evidence does not exclude the possibility of the stab having been inflicted by some one else, or the possibility of the injury having been caused otherwise G e.g. by falling on a sharp object. I find that the information against the accused possibly proceeded on a mere supposition, as the first assessor put it, or on an anticipation and malice, as the accused has claimed. I find the accused not guilty and acquit her. She is to be set free forthwith if she is not otherwise lawfully held. H

Kassanga for the Republic

Mselem for the Accused. I

1989 TLR p16

MAPIGANO J

A Mapigano, J.: The question is whether section 130 (1) of the Evidence Act 1967 is applicable to a couple which have lived together in concubinage for a space of three years, begotten two

children, and entertain the desire and hope of going through a ceremony of marriage in the near future.

B The rule laid down by that provision is predicated upon the objection on special grounds, to disturbing marital harmony more than is absolutely necessary, and what many regard as the harshness of compelling a husband to give evidence for the prosecution on the trial of his wife and vice versa.

C We got the rule from England and at paragraph 1331 of the 13th edition of Archbold it is said that the rule only applies where there is value marriage.

It is however appropriate that we approach the matter against the backdrop of the real Tanzania situation, which is to say that the question should be decided upon the D circumstances prevailing in this country. We have to acknowledge that such cohabitation is a notorious affair in Tanzania, that the line between a valid, marriage and concubinage is sometimes obscure, and that often enough such cohabitation takes on the typical features of a durable establishment.

E I am therefore prepared to give section 130 a broad construction and to enlarge its period to enfold a couple like the accused in this case and the prosecution witness Tabu Mohamed. I accordingly sustain Mr. Mselem's submission that Tabu Mohamed is not under duty to testify for the prosecution.

F Order accordingly.

1989 TLR p16

G

[zRPz]ABDUL ALI ISSA v REPUBLIC 1989 TLR 16 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Kyando J

4 March, 1989

Flynote

Criminal Practice and Procedure - Appeals - Right of appeal - Witness aggrieved by order H of the court - Whether such witness has a right to appeal.

Criminal Practice and Procedure - Appeals - Right of appeal - Order made on a trial for the restitution of property - Whether "any person aggrieved" by such order includes a person who is not a party to the case - Section 358(5) Criminal Procedure Act construed. I

1989 TLR p17

KYANDO J

-Headnote

The appellant was a witness in a criminal case. At the conclusion of the trial the District A Court ordered that 604 bales of second hand clothes, mitumba, which were exhibits in the case be restored to Sadrudin Suleman, the other respondent, who was one of the accused persons at the trial. The accused were discharged. The appellant was dissatisfied by the restoration order. B

On appeal it was argued that the appeal was incompetent because, inter alia, the appellant had no right to appeal. The court considered under what circumstances a person who is not a party to the proceedings may appeal. C

Held: (i) A person cannot appeal against an order made under s. 357 of the C.P.A. relying on subsection (5) of s. 358 of the C.P.A. because the subsection says "any person aggrieved by an order made under this section", i.e. s. 358;

(ii) an order which can be appealed from by "any person aggrieved" under D subsection (5) of section 358 is an order made on a trial for the restoration of property;

(iii) before an order under s. 358 C.P.A. becomes appellable, there has to be a trial for restitution of property;

(iv) it is only a party to the restitution of property proceedings who may appeal E against an order of restoration; and not anyone else;

(v) section 358 C.P.A. applies only to situations where an accused has been prosecuted to conviction. Since the accused was discharged section 358 C.P.A. does not apply. F

Case Information

Appeal dismissed.

Y. Mchora, for Appellant

Malaba and Kesaria for Respondents. G

[zJDz]Judgment

Kyando, J.: The appellant was a witness in Criminal Case No. 179 of 1987 of the District Court of Dar es Salaam, at Kisutu. He was PW11. At the conclusion of the trial the District Court ordered that 604 bases of second hand clothes, popularly known as H "mitumba", which were exhibits in the case be restored to Sadrudin Sulemani The said Sadrudin Sulemani was an accused person in the case. He was the third accused. The appellant appeals against the order that the exhibits be restored to Sadrudin Sulemani. He contends that the Court should have ordered that they be restored to him and not to I Sadrudin Sulemani.

1989 TLR p18

KYANDO J

A At the commencement of the hearing of the appeal Mr. Kesaria for Sadrudin Sulemani, the second respondent in this appeal, took points of preliminary objections to the appeal. He contended that the appeal is incompetent and should not proceed to hearing. He based his contentions on the following three points: B

(1) That the appellant is not the proper person, and has no right, to appeal in the case.

(2) That no notice of intention to appeal was given by the appellant as required by law.

(3) That the judgment or order appeared from was not accompanied with the C petition of appeal, again as required by law.

Mr. Malaba, learned State Attorney, who appeared for the Republic/first respondent, D supported Mr. Kesaria in these objections. They both then prayed that I dismiss the appeal for incompetence.

Mr. Mchora for the appellant maintained that the appeal is competent and prayed that I overrule the objections raised by his two learned friends. This ruling is on these opposing contentions of the learned counsel. E

I will start with the first point raised by counsel for the respondents, and that is that the appellant has no right of appeal in the case. Mr. Mchora submitted that the appeal is made under s. 358(5) of the Criminal Procedure Act, 1985. This subsection provides: F

358(5) Any person aggrieved by an order made under this section may appeal to the High Court and upon the hearing of such appeal the court may, by order annul or vary any order G made on a trial for the restitution of any property to any person, although the conviction is not quashed; and the order, if annulled, shall not take effect, and if varied, shall take effect as so varied.

Mr. Mchora argued that his client, the appellant, derives the right to appeal in this matter H from these provisions of the C.P.A. Mr. Kesaria on the other hand argued that it is only a person who is a party to a case who can acquire rights to appeal from any decision of a court in that case. He contended that because the appellant was a mere witness in the instant case he has no right of appeal and his present appeal is incompetent I and it is unmaintainable.

1989 TLR p19

KYANDO J

As I have said Mr. Mchora relied on s. 358(5) C.P.A. To appreciate the provisions of A the sub-section fully I think it is important to consider the provision of s. 357 C.P.A. and also those in the remaining sub-sections of s. 358. Section 357 provides:

Where, upon the apprehension of a person charged with any offence, any property is taken B from him, the court before which he is charged may order -

(a) that the property or party thereof be restored to the person who appears to the court to be entitled thereto, and if he be the person charged, that it be restored either to him or to such other person as he may direct or C

(b) that the property or part thereof be applied to the payment of any fine or any costs or compensation directed to be paid by the person charged.

Section 358 provides: D

358 (1) If any person guilty of an offence mentioned in chapters XXVI to XXXI, both inclusive, of the penal code, in stealing, taking, obtaining extorting, converting or disposing of, or in E knowingly receiving any property, is prosecuted to conviction by or on behalf of the owner of such property, the property shall be restored to the owner or his representative.

(2) In every case referred to in this section the court before which such offender is F convicted shall have power to award from time to time writs of restitution for the said property to order the restitution thereof in a summary manner, save that: G

(a) Whether goods as defined in the sale of goods ordinance have been obtained by fraud or other wrongful means not amounting to stealing, the property in such goods shall not revest in the person who was the owner of the goods or his H personal representative by reason only of the conviction of the offender; and

(b) Nothing in this section shall apply to the case of any valuable security which has been in good faith paid or discharged by some person liable to the payment thereof, or being a negotiable instrument has been in good faith taken or received I by transfer or delivery by

1989 TLR p20

KYANDO J

some person for a just and valuable consideration without any notice or without A reasonable cause to suspect that the same has been stolen.

(3) On the restitution of any stolen property if it appears to the court by the evidence that the offender has sold the stolen property to any person, and that such person had no B knowledge that the same was stolen, and that money has been found in possession of and taken from the offender on his apprehension the court may, on the application of such purchaser, order that out of such money a sum not exceeding the amount of the C proceeds of such same be delivered to the said purchaser.

(4) (Not applicable). D

Mr. Mchora argued that the words "any person aggrieved" in sub-s.(5) of s.358 mean what they say, i.e. anyone whatsoever who is dissatisfied by an order for restoration made by a subordinate court can appeal from that order to the High Court. He argued E that the appellant was aggrieved by the order made in this case by the trial court and being "a person", even though he was only a witness, he has the right of appeal under the above sub-section.

Section 358 is rather difficult to construe. But to my understanding, sub-s.(5) applies F only to section 358 and not to s. 357 also. This means that one cannot appeal against an order made under s. 357 relying on sub-s.5 of s.358, because the sub-section says "Any person aggrieved by an order made under this section", i.e. s. 358. It is important to make this clear because in their arguments before me learned Counsel did not seem to G make a distinction between orders made under s. 357 and these made under s. 358. Mr. Mchora in particular appeared to be of the view that a person aggrieved by an order made under s. 357 can appeal under s. 358 (5) against it.

Secondly, it would appear that an order which can be appealed from by "any person H aggrieved" under sub-section (5) is an order made on a trial for the restitution of property. These are the words used in the sub-section itself. This therefore means that before an order under s.358 is made appealable, there has to be a trial for restitution of property and the order made in that trial is the one which is appealable to the High Court I by anyone aggrieved by it. Quite clearly, this would mean the one who had been party to the

1989 TLR p21

KYANDO J

trial i.e. the trial for restitution of property, and not anyone else. For such a trial to take A place I think there would have to be an applicant (for the order of restitution) and a respondent, or contending parties bearing titles akin to these. At the conclusion of this trial, an order or writ such as that referred to in sub-s.(2) then issues and it is from it that a party may appeal under sub-s.(5). B

Lastly, it is clear that s.358 as a whole only applies to situations where an accused has been convicted. It does not apply to situations where an accused has been acquitted. This is obvious from these words of s.358(1): "If any person guilty of an offence mentioned in chapters XXVI to XXXI, both inclusive ... is prosecuted to conviction by C or on behalf of ..."

Applying the above, it is clear that section 358, and its sub-s.(5) have no application to the instant case. This is because, first, no trial for restitution of the property, the subject matter of this appeal, was held in the District Court and there is therefore no order which D can properly be appealed from by the appellant. The one which he is appealing from now is not the type of order envisaged by s.358. Secondly, and this is of greater importance, there was no conviction in this case. The accused were in fact discharged after the prosecution failed to establish prima facie case against them. Section 358 E C.P.A. has no application therefore as that section applies to "prosecutions to convictions" only.

Because s. 358 does not apply to this appeal the appellant cannot rely on s.358(5) to present it and Mr. Mchora was quite clearly wrong to place reliance on the provisions of F that sub-section as shown above.

Can the appellant rely on any other provisions of the C.P.A. Mr. Mchora emphasised in his submissions on the words "who appears to be entitled thereto" used in section 357 and argued that the property in this case should have been ordered to be restored to his G client because on the evidence he appears to be the one entitled thereto. By his emphasis on those words I understood Mr. Mchora to be relying on s. 357 too. But that section has no appeal provisions. As already indicated sub-s.(5) of s.358 only applies to s.358. So how can a person appeal who is aggrieved by an order for restoration of H property made under s.357? Is it by reliance on s.359(1) of the C.P.A.? Sub-s.(1) of s.359 provides:

359(1) save as hereinafter provided, any person aggrieved by any findings, sentence or order I made or passed by a subordinate court ... may appeal to the High Court...

He can not rely, in my view, on these provisions either, as, like under s. 358(5) where a A person who can appeal must be one who was a party to a trial for restitution of property, here too one must have been a party to the trial in order to be aggrieved by "any finding sentence or order made or passed by a subordinate court" and appeal. B Under s.359 the parties envisaged are, as Mr. Kesaria rightly argued, the Public (or prosecutor) or the accused. It can not logically be contended that a witness in a case can acquire rights to appeal under this section. If a witness feels that an order for restitution C under s.357 is wrong, the proper course for him is to request either the prosecutor, if he was a prosecution witness, or the accused, if he was a defence witness to appeal against it. In the instant case therefore the appellant had no right of appeal under s.359 (1) C.P.A. either. There being no other provisions on the basis of which he could properly have appealed, as submitted by Mr. Kesaria and Mr. Malaba, the appeal he D brought to this court is unmaintainable. It is incompetent.

I will now consider the objection based on an alleged failure to give notice of intention to appeal. Under s.361(a) C.P.A., no appeal under s.359 C.P.A. can be entertained unless E the

appellant has given notice of his intention to appeal within ten days from the date of the finding, sentence or order he wishes to appeal against. As indicated above, Mr. Kesaria and Mr. Malaba for the respondents contended that no notice of intention to appeal was ever given in this case. They submitted therefore that the appeal is F incompetent on this ground too and prayed that it be dismissed. In reply Mr. Mchora contended that he gave notice of intention to appeal and within the prescribed time. He said the notice is contained in his letter dated 28 November l988 to the Principal Resident Magistrate, Kisutu Court. The letter reads: G

The Principal Resident Magistrate,
Kisutu Court,
P.O. Box 538,
DAR ES SALAAM
Your Honour, H
RE: CRIMINAL CASE NO. 179 of 1987,
REPUBLIC v. MURAD MOHED & 2 OTHERS
Reference is made to the caption above. I

1989 TLR p23
KYANDO J

We are acting under instructions from our client, MR. ABDUL ALI ISSA, who was the A complainant and gave evidence as PW11 in this case. On 26th November, l998, the Honourable Jibrea, SDM, made an order of restitution conferring ownership of the goods to the 3rd accused SADRU SULEIMANI. B

Our client intends to apply for a revision of the said order to the High Court, and we would therefore be most obliged if you would avail us with a certified copy of the drawn order to enable us proceed with the application.

Thanking you, C
(Sgd)
MCHORA & COMPANY
ADVOCATES D
cc: Incharge Prosecution
Kisutu Court
O.C. Port Police
DAR ES SALAAM E

Mr. Kesaria argued that this letter is not a notice of intention to appeal at all. At best, he said it might be a notice of intention to apply for revision. He maintained that the appeal was lodged without the requisite notice of intention to appeal. Mr. Mchora argued in F reply that since there is no such thing in law as a notice of intention to apply for revision, it should be assumed that the use of the words "intends to apply for revision of the said order" in the letter was a slip of the pen but what was intended was a notice of intention to appeal. He submitted therefore that the letter should be accepted as a notice of G intention to appeal and that therefore respondents' counsels' objections to the appeal based on lack of notice to appeal should be overruled.

I find the arguments by Mr. Mchora on his letter reproduced above not sensible at all. H The letter is, quite simply, not a notice of intention to appeal at all. Even if I was minded to accept his argument that the letter was intended to be a notice to appeal and not to apply for revision and that there was a slip of the pen in the use of the words "intends to apply for revision" what transpired soon after this letter does not support Mr. Mchora's I contentions. Mr. Mchora actually not only applied but he pressed for a revision of the order

of the District Court by the High Court and it was only after the J.K. advised him to ask A the DPP to appeal that he adopted the course of appealing. It is clear to me that the letter reproduced above was part of the efforts to have the order revised by the High Court. It had no relationship to any intended appeal at all.

In desperation, as he was about to conclude his arguments on this point, Mr. Mchora B stumbled on the point that the appeal has already been admitted. By his minute dated 13.12.88, my learned brother Mapigano, J., admitted the appeal to hearing. Mr. Mchora contended that under the second proviso to section 36l C.P.A. the High Court may, for C good cause, admit an appeal "notwithstanding that the period of limitation prescribed in this section has elapsed". He argued therefore that since the appeal was admitted to hearing it must be assumed to have been admitted under these provisions of the law and that it is therefore competent and maintainable.

Mr. Kesaria, in reply, submitted that the proviso requires "good cause" to be shown D before extending time, and that in this case no cause at all had been shown by the appellant when Mapigano, J. minuted to admit the appeal. He argued therefore that Mr. Mchora cannot rely on this minute and the second proviso to s.361 C.P.A. I agree with E Mr. Kesaria. In addition, the proviso applies to periods of limitations. It does not apply to admitting of an appeal where no notice at all has been given. In other words it does not say that the High Court may admit an appeal notwithstanding that no notice of intention to appeal may have been given. It refers to periods of limitation and this means F that a party, if he shows good cause, may have his appeal admitted notwithstanding that he may have lodged his notice of intention to appeal after the prescribed period of limitation has elapsed. The proviso does not save the situation for the appellant in this case therefore. No notice at all was given and the appeal on this ground too is incompetent. G

Finally, on failure to attach the judgment or order appealed from: Mr. Mchora submitted that he attached the copies of the order when lodging the appeal and he expected that it would be for the court to serve the order, attached to the Petition of appeal, on Mr. H Kesaria. Mr. Kesaria complained that his copy of the petition of appeal was not accompanied by a copy of the judgment or order appealed against and he contended that this infringed s.362 C.P.A. I note in the court case - file that there are several copies of the drawn orders of the District Court against which the appeal was brought. I give I therefore the benefit of doubts to Mr. Mchora and hold that he supplied sufficient copies of the order to the Court but

the Court may have overlooked to serve same on the respondents' Counsel when A serving copies of petitions of appeal on them. The objection based on failure to comply with s.362 C.P.A. is therefor overruled.

On the grounds that the appellant, having only been a witness and not a party to the case, has no right of appeal, and that no notice of intention to appeal was given by the B appellant in this case as required by law, this appeal is incompetent. The two objections by counsel for the respondent are upheld and the appeal is hereby dismissed for incompetence. C

Appeal dismissed.

1989 TLR p25

D

[zRPz]MASUDI AMLIMA v REPUBLIC 1989 TLR 25 (HC)

Court High Court of Tanzania- Mtwara

Judge Maina J

6 March, 1989 E

Flynote

Evidence - Witnesses - Number of witnesses required to prove a fact.

Criminal law - Alibi - Notice of intention to raise defence of alibi. F

-Headnote

This is an appeal against conviction for house breaking and stealing, for which the appellant was sentenced to five years in prison in the first count and three years in the second count, to be served concurrently. G

Complainant, Daileta Kalamola locked her house and went to work in her Shamba. She returned to find her house broken into and her properties valued at shs.6895 stolen. Complainant's neighbour had seen the appellant at about eight o'clock in the morning carrying a bag. Detective Burhan testified that the appellant admitted the theft and sent H the Police to various places where appellant claimed that stolen properties were hidden.

The appellant denied the theft, saying that he had been with his girl friend at another place called Sululu when the offence was committed. This alibi was rejected by the trial magistrate. The appellant submitted that the trial magistrate erred in convicting him on the testimony of a single witness. I

1989 TLR p26

MAINA J

Held:(i) There is no law requiring that more than one person should be required to prove A the fact that the appellant was seen coming out of the house;

(ii) the appellant's defence of alibi was properly rejected. He did not give the notice required under section 194(4) of the Criminal Procedure Act, 1985, and he did B not call the person he claimed was with him at the time of the commission of the offence.

Case Information

Appeal dismissed. C
Boaz, State Attorney, for the Republic
Appellant - Absent.
[zJDz]Judgment
Maina, J.: Masudi Amlima is appealing against conviction for house breaking and D stealing, for which he was sentenced to imprisonment of five years in the first count and three years in the second count, to be served concurrently.
The complainant, Daileta Kalamula, told the trial court that on 4 May l987 she locked her house and she went to work in her shamba. When she returned to the house at about E four o'clock in the afternoon, she found the house had been broken into and her properties, mainly clothes, valued at shs.6895/=, were stolen. Her neighbour, PW3 Fabian told her that he had seen the appellant coming out of the house at about eight F o'clock in the morning carrying a bag. Fabian said in his evidence that he did not suspect anything because the appellant who is also a neighbour, was a frequent visitor to the house. The appellant was arrested after the matter was reported to Police. In his evidence Detective Cpl. Burhani said that the appellant admitted the theft. He sent the G Police and the complainant to various places where he claimed that the stolen properties were hidden. The appellant also named two persons to whom he had given the clothes. One of these persons denied any knowledge about the clothes. The other was not traced. None of the stolen properties were recovered. H
The appellant denied the theft, saying that he had been at a place called Sululu when the offence was commited. He said he was with his girl friend whose name he did not remember. He has said in the memorandum of appeal that the trial magistrate erred in convicting him on the testimony of a single witness. Section 143 of the Evidence Act provides that: I
1989 TLR p27

Subject to the provisions of any other written law, no particular number of witnesses shall in A any case be required for the proof of any fact.

In this case the complainant's neighbour saw the appellant coming out of the B complainant's house. That was a single witness. The trial magistrate believed him. There is no law requiring that more than one person should be required to prove the fact that the appellant was seen coming out of the house. The evidence of PW3 Fabian was sufficient to prove that fact. The appellant was seen carrying a bundle, and the C complainant later found out that her house was broken into, and her properties were stolen. From Fabian's evidence, the irresistible conclusion is that the appellant broke into the house and stole those properties. That was sufficient evidence to base a conviction.
The appellant's defence of alibi was rejected, and properly so. He did not give the notice D required under section 194(4) of the Criminal Procedure Act that he intended to raise the defence of alibi. Furthermore, he did not call the person he claimed was with him at the time of the commission of the offence. The trial court, therefore, properly rejected the appellant's alibi. E
From the evidence on record, the learned trial magistrate considered what Fabian said and believed that evidence. Fabian knew the appellant and it was in broad day light. There is also the

evidence that the appellant admitted the theft, and even showed the prosecution witnesses where the properties were hidden, although they could not be F recovered. The evidence, on the whole, leaves no reasonable doubt on the appellant's guilt. The sentence is the minimum under the law.

G Appeal dismissed.

1989 TLR p27

H

[zRPz]DHAHIRI ALY v REPUBLIC 1989 TLR 27 (HC)

Court High Court of Tanzania- Tanga

Judge Mushi J

10 March, 1989 -

Flynote

Evidence - Voire dire - Requirement of voire dire before a child of tender years testifies - I Procedure.

1989 TLR p28

MUSHI J

-Headnote

Appellant was charged and convicted of the offence of defilement of a girl under A fourteen years c/s 136(1) of the Penal Code. He was sentenced to thirteen years imprisonment. The appellant is appealing against both conviction and sentence, arguing, inter alia, that the trial magistrate exceeded his sentencing jurisdiction. It was also B argued for the appellant that the evidence of a child of tender years was wrongly received and ought to have been discarded completely.

Held: (i) It is clear from section 127(2) of the Evidence Act, 1967 that if a child of tender years does not understand the nature of an oath, her evidence may nevertheless C be received without oath or affirmation (a) if she is possessed of sufficient intelligence and (b) she understands the duty of speaking the truth. The trial magistrate must record that such investigation has been made to establish whether the two conditions [(a) and (b)] have been satisfied;

(ii) trial magistrate made a finding that the witness did not understand the nature D of an oath and her evidence could not be received on oath or affirmation. But the trial magistrate did not proceed to establish the second condition;

(iii) the proceedings do not show that the learned trial magistrate complied with E the mandatory provisions of the law with the result that the evidence of PW2, Asha, was wrongly admitted and acted upon.

Case Information

Appeal allowed. F

Akaro for appellant

Mukandara for the Republic.

[zJDz]Judgment

Mushi, J.: The appellant in this case is Dhahiri Ally. He was charged and convicted for G the offence of defilement of a girl under fourteen years c/s 136(1) of the Penal Code. He was sentenced to thirteen (13) years imprisonment. The trial magistrate exceeded his jurisdiction in imposing the above sentence of thirteen years. The appellant is appealing against both conviction and sentence. H

In cases of defilement and rape, the victim, in the majority of cases, is the principal witness for the prosecution and in most cases the conviction is based on her evidence. Children under fourteen years, are, in our evidence, regarded as being of tender years as per section 127(5) of the Evidence Act. The Evidence Act provides for special I provisions for the reception of the evidence of children of tender years. Mr. Akaro, learned Counsel for the appellant submitted

that the evidence of PW2 - Asha who was the child of tender years, was wrongly A received and it should be discarded completely. The learned counsel stated, and I quote:

PW2 - was a child of tender years. Her evidence could only be received if she knew the nature B of oath or was possessed of sufficient intelligence and understands the nature of speaking the truth as required under section 127 of Evidence Act. The trial court must make a record of such findings. In the proceedings with regard to the evidence of PW2 - Asha Ndungo nowhere is recorded that the witness was possessed of sufficient intelligence to justify the reception of C her evidence.

Section 127 (2) of Evidence Act is relevant to this point and for ease of reference the subsections reads: D

127:(2) Where in any criminal cause or matter any child of tender years called as a witness does not, in the opinion of the court, understand the nature of an oath, his evidence may be E received, though not given upon oath or affirmation, if in the opinion of the court, to be recorded in the proceedings, he is possessed of sufficient intelligence to justify the reception of his evidence, and understands the duty of speaking the truth.

The provision is clear that if the child of tender years does not understand the nature of F an oath, her evidence may nevertheless be received without oath or affirmation if two conditions are satisfied.

These conditions are that:

She is possessed of sufficient intelligence and She understands the duty of speaking the G truth.

The trial magistrate must record in the proceedings that such investigation has been made to establish whether the two conditions exist and must make a specific finding of these H facts. In the proceedings in this case with regard to PW2 - the record reads as follows:

PW2 - Asha d/o Ndungo, Tanzania, Female, 11 years, Islam. I

Court:Witness is under the age of 14 years. In terms of

MUSHI J

section 127 of the Evidence Act, she is cross-examined and she says: A

Witness: I am schooling at Masiwani Primary School. I am in standard three. I have affirmed to friends several times in our conversations. I do not know why I have been B doing that. I know the difference between a liar and one who speaks truth, but not exactly. Court: To the humble opinion of this Court, the witness does not know the nature of oath and she will proceed giving evidence unaffirmed. C

Here the trial magistrate clearly made a finding to the effect that PW2 - Asha did not understand the nature of an oath therefore he evidence could not be received on oath or affirmation. But the learned trial magistrate did not proceed to find out, before receiving D her evidence, whether she was possessed of sufficient intelligence and she understood the duty of speaking the truth. The Court of Appeal, considering similar provision in the case of Nyasani s/o Bichana v R. [1958] E.A. 90 stressed this point when it said at page 191: E

It is clearly the duty of the Court under that section to ascertain, first, whether a child tendered as a witness understands the nature of oath, and, if the finding on this question is in the negative, to satisfy itself that the child is possessed of sufficient intelligence to justify the reception of the evidence and understands the duty of speaking the truth. This is a condition F precedent to the proper reception of unsworn evidence from a child, and it should appear upon the face of the record that there has been a due compliance with the section. G

Again in the case of Kibangeny v R. [1959] E.A. at page 94 the same Court repeated the necessity of ascertaining whether the child is possessed of sufficient intelligence and understands the duty of speaking the truth when it was stated: H

... as we have seen, that where such a child does not in the opinion of the Court understand the nature of an oath his evidence may be received unsworn if the court is satisfied of his intelligence and that he understands the duty of speaking the truth. This necessarily implies I that before the child can be allowed to give evidence upon oath (or affirmation) the court

1989 TLR p31

must satisfy itself that he does understand the nature of an oath. Such was the A interpretation placed on the passage by this court in the recent case of Nyasani s/o Bichana v R. (2), [l958] E.A. 190 (C.A.), where after reciting the section we held:

(A) It is clearly the duty of the court under that section to ascertain, first, whether a child B tendered as a witness understands the nature of an oath, and, if the findings on this question is in the negative, to satisfy itself that the child "is possessed of sufficient intelligence to justify C the reception of the evidence and understands the duty of speaking the truth.

Such an investigation need not be a length one but it must be done and the court record D must bear witness to it. In this case the proceedings do not show that the learned trial magistrate complied with the mandatory provision of the law with the result that the evidence of PW2 - Asha was wrongly admitted and acted upon. The evidence of this witness was crucial to the prosecution case because apart from touching on other E aspects of the evidence, it was the only evidence regarding the identification of the appellant as the person who defiled her. There

was, of course, evidence which proved that PW2 was defiled but as who did it is where the evidence of PW2 was important. Under these circumstances, the appeal is allowed, and it is ordered that there should be a retrial of the appellant. F

Appeal allowed.

1989 TLR p31

G

[zRPz]MICHAEL R. KABONGO v REPUBLIC 1989 TLR 31 (HC)

Court High Court of Tanzania- Mbeya
Judge Mwaikasu J

21 March, 1989 H

Flynote

Criminal Practice nad Procedure - Forfeiture - Firearms and Ammunition Ordinance (Cap.223) - Conviction under section 31(4) to be followed by forfeiture order.

Criminal Practice and Procedure - Forfeiture order made by trial court seven years after sentencing and without notice or audience to the Republic and appellant - Whether I procedure is regular.

1989 TLR p32

Principles of Natural Justice - Forfeiture order made seven years after sentencing - A Whether the trial court becomes functus officio - Duty of court where prosecution fails to apply for forfeiture order - Firearms and Ammunition Ordinance (cap. 223).

-Headnote

The appellant was at the material time of the incident the holder of two firearm licences B for two rifles. On 2/3/l980 the appellant left the two guns with someone who was not authorised to possess any firearm (Mr. Sanga). The guns were found with the latter person. Consequently both the appellant and Mr. Sanga were charged with the C appropriate offences under the Firearms and Ammunition Ordinance, Cap. 223 and sentenced. In terms of s. 31(4) of the Ordinance, upon conviction of the appellant, the firearm was liable to be forfeited or to have the licences suspended for a specified period. This was not ordered by the trial court. The record remained so silent for seven D years until the same court was moved by the Director of Public Prosecution. The trial magistrate proceeded to make the forfeiture order without notice to the prosecutor who was to represent the Republic, and the appellant whose guns were to be forfeited. This appeal is based on the grounds that such order was made seven years after sentence had E been passed and without notice or hearing to the appellant, or any application for the order from the prosecution.

Held: (i) Procedure adopted by the learned trial magistrate was grossly irregular, in that F by denying the parties the opportunity to be heard, he offended one of the cornerstones of justice, i.e. principles of natural justice;

(ii) the order for forfeiture ought ordinarily to have been made soon after passing the sentence;

(iii) the trial magistrate does not become functus officio and thereby incompetent G to make the order later by merely omitting to make any other order such as forfeiture or compensation as required by law;

(iv) where the trial court inadvertently omits to make an order that order could H be properly considered and made at a later stage after sentencing, provided that all parties concerned have been given notice and an opportunity to be heard;

(v) in a situation such as the foregoing, the trial court need not wait until the prosecution applies for such an order.

It should, in fact, be its duty to move for such order (see section 31(3) and (4) of I Cap.223 as amended by Act No. 50 of 1964).

1989 TLR p33

MWAIKASU J

Case Information

Appeal allowed. A

[zJDz]Judgment

Mwaikasu, J.: Before the lower court, (Kapaya, RM Esq.), the appellant, Michael Z. Kabogo, was convicted upon his own plea of guilty to the charge of failing to take proper precaution for safe custody of a firearm c/s 13(1) and 31(1) of the Arms and B Ammunition Ordinance Cap.223.

He was then sentenced to a fine of shs.2000/= or six months of imprisonment in default thereof. He paid the fine. No order of forfeiture of the firearms, which were two rifle guns or suspension of the licences in respect of such guns was made by the lower court C when such sentence was passed, which was on 18/8/80.

It was then seven years later and upon being urged to do so by the DPP, vide his letter Ref. No. J/C.ll0/l8/l49 of 9th September l987, that on 21/l0/87, and without notice to and in the absence of the appellant, the owner of the two guns, the lower court made the D forfeiture order.

That then is the subject of this appeal on the grounds that such orders was made seven years after sentence had been passed and without notice to the appellant, or any application for that order from the prosecution, and that the lower court erred in law in E making such forfeiture order without hearing the appellant first.

The appellant was represented by Mr. Mwakasungula, learned counsel and Mr. Naali learned State Attorney appeared for the Republic.

Arguing the appeal Mr Mwakasungula, learned counsel for the appellant contended F inter alia, that when the lower court sentenced the appellant on 18/8/80, without making the forfeiture order, it was thereby functus officio, as regards the order of forfeiture. It had therefore no power to make any order subsequently. Thus the order made on 21/l0/87 to forfeit the appellant's two guns seven years later was wrong in three G respects: first, there was no applicant for such order as no prosecutor appeared when the order was so made; secondly, the appellant himself was not present nor informed of such application if any. It was therefore prayed that the order should be quashed with an H order restoring the two guns to the appellant.

Mr. Naali, learned State Attorney declined to support the order of forfeiture so made upon finding that there was a clear irregularity on the face of the record. For the order having been made seven years after the sentence was passed was itself irregular. Then I considering the fact of the case the appellant ought to have at least

1989 TLR p34

MWAIKASU J

been called upon to show cause as to why the order should not be so made. He A therefore also conceded that the appeal should be allowed.

I allowed the appeal when it came up for hearing on 17/3/89, reserving my judgment which I now proceed to give.

Briefly the facts show that the appellant was at the material time of the incident the holder B of two firearms licences for two rifle guns.

Then on 2/3/80 the appellant left the two guns with Erasto Asheri Sanga who was not authorized to possess any firearm. On the same day at about l0 p.m., such firearms were C found with the said Sanga but it is not clear under what circumstances the guns were so found, and whether the same were found at the said Sanga's home or not.

Consequently both the said Sanga and the appellant got charged with the appropriate D offences under the Firearms and Ammunition Order, Cap. 223 and sentenced accordingly.

In terms of s.31(4) of the Firearms and Ammunition Ord. upon conviction of the appellant for contravening the provisions of the Ordinance, the firearm was liable to be E forfeited or to have the licences suspended for a specific period. That was not, however, so ordered by the learned trial magistrate and the record remained thus silent for a period of seven years until the lower court was subsequently moved by the D.P.P. as stated above. Then the learned trial magistrate proceeded - making the forfeiture order F without notice both to the prosecutor who was to represent the Republic and the appellant who had to be heard why such guns should not be so forfeited. Hence this appeal. In the first place I totally agree with both learned counsel that the procedure adopted by the learned trial magistrate was grossly irregular, in that by denying the G parties the opportunity to be heard, particularly the appellant, he thereby offended one of the cornerstones of justice, which is one of the principal arms of the principle of natural justice that no one should be condemned guilty or have his property confiscated, without being given the opportunity to be heard.

The other aspect of the appeal is that the order was irregular for being made several H years after the date when the sentence was passed, and that by then the trial magistrate was functus officio.

Admittedly, the order for forfeiture ought ordinarily to have been made soon after passing the sentence. That is why in terms of s. 351(4) of the C.P.A., when a forfeiture I order is so made in which an appeal lies, it shall not, except when the property is livestock or

1989 TLR p35

MWAIKASU J

is subject to speedy and natural decay, be carried out until the period for presenting the A appeal has passed or when such appeal is entered until the disposal of such appeal.

But one interesting question is whether where the trial magistrate has passed a sentence but omits to make any other order such as forfeiture or compensation as required under the law, he thereby becomes functus officio in respect of such forfeiture or B compensation order, and therefore incompetent to make it subsequently.

In my judgment I would not subscribe to such view. For it appears clear to me that the authorities so far available on the point do relate to the powers of the trial magistrate or C judge to the stage of sentencing, or some other order of the court finally determining the trial of the case such as an order for no case to answer. Yet an order for forfeiture that is to be made after the conviction and sentence of an accused person, is a separate exercise of judicial discretion over and above the sentence passed. It is in effect a D separate legal duty imposed upon the trial court that has to be exercised after the conviction and sentence have been passed. Though hinging upon an accused's conviction, it is a separate exercise of judicial powers over and above the power of sentencing. E

Thus where it has inadvertently been omitted, it could, in my view, be properly considered and made at a later stage after sentencing, provided that all parties concerned - the Republic and the accused person have been given notice and an opportunity to be heard. F

In such situation the court need not wait until the prosecution applies for such an order. It would, in fact, be its duty to move for such an order. For in terms of s.31(4) of the Firearms and Ammunition Ordinance as amended by Act No. 50 of 1964, it is there provided, thus: G

(4) All arms or ammunition and any equipment or tools used in the manufacture and assembling of such arms or ammunition, and any vessel, in respect of which an offence is committed is liable to be forfeited to Government. H

That then imposes a duty upon the trial court to consider making the order for forfeiture of the firearms or ammunition in respect of which an offence has been committed in contravention of the provisions of the Ordinance. There is, in fact, another duty imposed I on the trial court to the like effect as provided for under

sub-s.(3) of the same section which provides thus: A

(3) Any person so convicted who holds a licence or permit under this Ordinance shall be further liable to forfeiture of his licence or permit or to suspension thereof for such period as the court thinks fit. B

In this regard comparison can be made with the provision under s.7(2) of the Minimum Sentence Act 1972, relating to the making of orders for compensation. It is there provided thus: C

(2) An order under this section may be made at anytime after the sentence has been passed, and where it has not been made immediately after the sentence has been passed, the court which passed the sentence or any court having revisional jurisdiction over it, may make such D order at any subsequent time on the application of the owner of the property or on its own notice.

However, in considering whether orders of forfeiture provided for above should be E made, it is imperative, as a matter of justice that opportunity to be heard should be given to all the parties concerned.
In this case this court was inclined to make an order for the suspension of appellant's licences in respect of the two guns.
However, upon considering the circumstances of the offence of which the appellant was F convicted, and that seven years had elapsed during which the appellant was deprived of the use of his firearms as they remained in the custody of the police, it was found that such period was already more than enough in denying the appellant the use of such G firearms as a lesson for him to exercise greater care of the same.
Accordingly the appeal had to be allowed setting aside the lower court's order for forfeiture with an order that the two guns should be restored to the appellant.
H Appeal allowed.
1989 TLR p37
A
[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v A.M. SWAI 1989 TLR 37 (HC)

Court High Court of Tanzania- Dar Es Salaam
Judge Kyando J

29 March, l989
Flynote
Criminal Practice and Procedure - Appeals - Leave to appeal out of time - No notice of B intention to appeal given to trial magistrate - Whether a letter applying for copies of proceedings and judgment be treated as notice of intention of appeal.
-Headnote
The Director of Public Prosecutions applied supported with an affidavit, for leave to C appeal out of time against a decision of the District Court of Ilala. Besides the intended appeal having been lodged out of time, no notice of intention to appeal was given to the District Court. The DPP contended that the prosecutor in the District Court gave an informal notice to the trial magistrate. The magistrate, however, did not record it. The D DPP further contended that the informal notice was followed-up with a letter asking for copies of proceedings and judgment for appeal purposes.
Held:(i) There is no indication at all that any oral notice of intention to appeal was given by the Republic; E

(ii) a letter applying for copies of proceedings and judgment for appeal purposes is different from a notice of intention to appeal as envisaged by the law. The letter applying for proceedings and judgment for appeal presupposes that a notice has already been given; F

(iii) as no notice of intention to appeal was given the application for leave to appeal out of time cannot be entertained.

Case Information
Application dismissed. G
Senguji, for applicant
[zJDz]Judgment
Kyando, J.: The Director of Public Prosecutions, represented by Mr. Komeye, learned H State Attorney, applies for leave to appeal out of time against the decision of the District Court of Ilala at Kisutu in Criminal Case No. 153 of 1987 of that Court. The application is supported by the Affidavit of Simbakalia, State Attorney. The respondent, A.M. Swai, is in these proceedings represented by Mr. Kisusi, learned Advocate, who I opposes the application.
1989 TLR p38
KYANDO J
In the course of hearing the application it came to light that besides the intended appeal A having been lodged out of time no notice of intention to appeal was given to the District Court in the first place. Mr. Komeye on this point submitted as follows before me:

... no formal notice of intention to appeal was given to the District Court. What Mr. Chaburuma, B the prosecutor in the District Court, did was to give an informal notice to the trial magistrate. The magistrate, however, did not record it. Mr. Chaburuma followed up with a letter, within the time for giving notice, asking for copies of proceedings and judgment for appeal purposes. C The letter is dated l6/7/88. It was sent two weeks after judgment was delivered. This letter confirms that the prosecutor gave an informal notice of intention to appeal. He did not, of course, know that the magistrate had not recorded the oral notice of intention to appeal. So D notice was given, though the magistrate did not record it.

In reply, Mr. Kisusi submitted that in the first place the record of the case does not show that any notice was given. Secondly, Mr. Kisusi contended, the one who is said to have E given an oral notice, Mr. Chaburuma, was not present in the court below on the date of judgment. A public prosecutor was present and was the one who received the judgment in the District Court. Mr.Kisusi further submitted: F

Even then, Mr. Chaburuma should have sworn an affidavit to show that he had given notice. Your Lordship cannot rely on my learned friend's statement from the Bar. G

As the application was for extension of time to appeal and it is discovered that even the notice of intention to appeal was not given, I pray that the application be dismissed.

Mr. Komeye in reply reiterated his prayer that the letter of Mr. Chaburuma of l6/7/87 be H taken as notice of intention to appeal.

I have given careful consideration to the case as a whole and the arguments of learned counsel. It is clear that there is no indication at all that any oral notice of intention to appeal was given by the Republic. The one who received the judgment of the court I below is indicated to be Insp. Mubwego, a public prosecutor. It is unlikely therefore that Chaburuma could have given the notice as contended
1989 TLR p39
by Mr. Komeye as he was not in court on the date of judgment in the District Court. A

Concerning the prayer that I treat the letter of 16/7/88 as a notice of intention to appeal, it is my view that a letter applying for copies of proceedings and judgment for appeal purposes is different from a notice of intention to appeal as envisaged by the law. The B letter applying for proceedings and judgment for appeal purposes presupposes that a notice has already been given. As no notice of intention to appeal was given in this case in the first place, the application for leave to appeal out of time cannot be entertained. It is dismissed in accordance with the prayer by Mr. Kisusi. C

Application dismissed.

1989 TLR p39

D

[zRPz]OMARI CHIKAMBA v FATUMA MOHAMED MALUNGA 1989 TLR 39 (HC)

Court High Court of Tanzania- Mtwara

Judge Kazimoto J

7 April, 1989 E

Flynote

Family Law - Marriage - Islamic law - Ground for dissolution - Irreparably breaking down.

Islamic Law - Gift - Effect of gift on division of matrimonial property.

Family Law - Division of matrimonial property - Whether misconduct of spouse and mismanagement of property are factors to be considered. F

-Headnote

The appellant and the respondent were husband and wife who were married according to Islamic Law. During the subsistence of their marriage the appellant and the respondent G had acquired four houses, a coconut farm and a stock of animals. Matrimonial problems developed and the marriage was dissolved by an Urban Primary Court. The respondent was proved to have been living an adulterous life. Trial Court found that the properties were jointly acquired through their joint efforts and awarded two houses to H the appellant and two houses to the respondent. The farm and stock were awarded to the appellant while the respondent was awarded Tshs.10,000/= as her share of the farm and animals. Respondent appealed to the District Court which, inter alia, found that one of the houses was given as a gift to the respondent's mother and should not have been a I subject of division.

1989 TLR p40

KAZIMOTO J

The appellant appealed to the High Court arguing, inter alia, respondent's alleged A misconduct and mismanagement of property to be crucial in distribution of matrimonial property.

Held: (i) Where during the subsistence of a marriage either spouse or both spouses give B matrimonial property to another as a gift,it is presumed that such property has been permanently given to that other person unless there is evidence to the contrary;

(ii) the house given to the respondent's mother was not a matrimonial property and should not have been subjected to these proceedings. The District Court was right C to exclude it from the list of matrimonial property;

(iii) although evidence in this case shows that respondent was of loose and immoral character both Islamic law and section ll4(2)(a) of the Law of Marriage Act, D l97l provide that a divorced woman is entitled to, and does not forfeit her share, in the division of matrimonial property because of immoral or loose character;

(iv) misconduct by a spouse touching to the management of matrimonial property is a relevant factor when the issue of division of matrimonial property upon dissolution of E marriage arises. The District Court had rightly awarded the respondent one house out of three.

Case Information

Appeal dismissed.

[zJDz]Judgment

Kazimoto, J.: The appellant and the respondent were husband and wife and were F married according to Islamic law. Matrimonial problems having developed the marriage was dissolved by the Urban Primary Court. There was conclusive evidence that the marriage had been irreparably broken down. The respondent has been proved to have been living an adulterous life. The decision to dissolve the marriage was not challenged G by the parties.

During the subsistence of their marriage the appellant and the respondent had acquired four houses, a coconut farm planted with 250 trees and a stock of animals. The trial H court found on the evidence that these properties were jointly acquired through their joint efforts and awarded two houses to the appellant and two houses to the respondent, the farm and stock were awarded to the appellant while the respondent was awarded shs.10,000/= as her share for the farm and animals. The respondent appealed to the I District Court which partly allowed the appeal. Although the District Court found that there were four houses which were acquired during their

marriage it was satisfied that one house was given as a gift to the respondent's mother A and should not have been a subject of division. With respect I agree with the decision of the District Court. Where during the subsistence of a marriage either spouse or both spouses give a matrimonial property to another person as a gift, it is presumed that such property has been permanently given to that other person unless there is evidence to the B contrary. In this case there is no such contrary evidence. The house given to the respondent's mother was not a matrimonial property and should not have been subjected to these proceedings. The District Court was right to exclude it from the list of matrimonial property. Consequently the District Court awarded two houses to the C appellant together with the coconut farm including stock and gave the respondent one house and ordered the appellant to compensate the respondent shs.30,000/= as her lawful share of the farm and stock. The appellant has been aggrieved by this decision and hence this appeal. D

The appellant has submitted three grounds of appeal which are:

l. That, the first appellate court was wrong in awarding shs.30,000/= more to the respondent as additional amount that would drive her to an equal share of jointly E acquired matrimonial assets, when there was sufficient evidence to prove that the respondent had arbitrarily shared out to herself some of the assets such as a motor cycle, a pedal cycle etc ... even before the breakdown of a marriage. F

2. Having regard to the case cited, the first appellate magistrate ought to have found that property that respondent had encroached upon before the dissolution of marriage was enough and ought not to add more property on top of it. G

3. That the first appellate magistrate did not have in mind the fact that where a jointly owned property is to be developed, he/she who in the first instance shows unfaithfulness towards it is always to lose. H

This appeal has raised two important legal issues. The first to be considered and decided is whether the respondent's alleged misconduct was in law a relevant factor for the purpose of distribution of matrimonial assets and secondly whether a spouse I

who mismanages matrimonial property is entitled to equality of division of assets upon A dissolution of marriage.

Both courts below have dealt at length with the custom of the parties. The trial court however did not say whether a moslem woman who is divorced due to misconduct is B entitled, under Muslim custom, to anything. On appeal the learned senior resident magistrate stated as follows:

What share should a divorced Sunni Moslem woman or man get from the matrimonial assets? I could not lay a hand to a legal text - book on Islamic law either. I shall therefore C assume that the two gentlemen assessors, themselves being moslem, took note of this issue when they gave their views. The assessors seem to agree that a woman is entitled to something from her former husband if she did not misbehave in the management of the matrimonial assets otherwise she forfeits that right. D

In a nutshell the learned magistrate stated that a moslem woman who misbehaves in the management of matrimonial assets is not entitled to such assets. E

In a recently decided case of Salim Wendo v Tausi Wendo and Alfred Kasililwa High Court (DSM Registry) Matrimonial Civil Case No. 8 of l987 (unreported) Mnzavas, J.K. had this to say:

The parties are Muslims and as such they belong to customs of the Muslim Community. F Under Islamic custom a divorced wife is entitled to a parting gift (Kithumn) from her former husband.

The facts in that case are the same as in this case. The woman was, as the respondent in G this appeal, of loose and immoral character. In that case she was given money to start poultry business and she failed to manage it. The Hon. J.K. is a Moslem himself and I venture to think that when he said a divorced Muslim woman who misconducts herself is H entitled to a parting gift he is speaking about the customs to which he belongs and has personal knowledge of such custom. It is therefore clear to me that under section 114(2)(a) of the Law of Marriage Act l97l a

divorced Muslim woman is entitled to, and does not forfeit her share in, the division of matrimonial assets. I

1989 TLR p43

KAZIMOTO J

I now come to the first issue in this appeal. In this case there was evidence that the A respondent has been guilty of gross misconduct. She not only committed acts of adultery with the sewing machine operator as shown by the exhibits tendered in court, which in themselves would not, in my view have affected her share in the division of property, but also she mismanaged the tailoring business which she had completely wrecked down. B Besides that she built a house clandestinely. Thirdly while the appellant was away in Dar es Salaam the respondent disposed by sale three mattresses, a bed, a refrigerator, three sewing machines, a motor cycle and so on. There was therefore cogent evidence to prove that the respondent had grossly misconducted herself in the management of the C matrimonial property. I would hold accordingly that a misconduct by a spouse touching to the management of matrimonial property is a relevant factor when the issue of division of matrimonial property upon dissolution of marriage arises. D

The second issue - whether a spouse who mismanages matrimonial property is entitled to equal division of such assets - must be resolved in the negative. The District Court had rightly awarded the respondent one house out of three. The appellant did not seem to challenge this in his memorandum of appeal. He contended that the award of E shs.30,000/= by the District Court to the respondent would have put the respondent to equal division of the matrimonial assets. While it was proved that the respondent had sold the items stated above it was not stated how much money was realised. Nor was the value of the three houses stated by either party to this court. The value of shamba F was also not stated. The learned magistrate has stated that the current market value of goat was shs.l,000/=. And with 30 goats became up to shs.30,000/=. In the absence of value of the matrimonial property I cannot say that the award of shs.30,000/= to the G respondent would make her get more than or equal to half of the matrimonial property. Having considered the principles which the senior resident magistrate had used in arriving at shs.30,000/= I cannot say that he erred in this. Taking into account all factors, including the nefarious conduct of the respondent, I am satisfied that the award of H shs.30,000/= would not put the respondent on equal footing as regards division of matrimonial property. The decision of the District Court is upheld. I dismiss the appeal with costs.

I Appeal dismissed.

1989 TLR p44

A

[zRPz]REPUBLIC v ATHUMANI RAJABU & OTHERS 1989 TLR 44 (HC)

Court High Court of Tanzania- Mtwara

Judge Kazimoto J

7 April, l989

Flynote

Criminal Practice and Procedure - Charges - Circumstances for amending a charge. B

Criminal Practice and Procedure - Bias - Determination of bias on the part of the trial magistrate.

-Headnote

This was a complaint lodged against the trial magistrate for being biased against one, C Raphael Binali. In the original case three people were charged with shop breaking and stealing c/s 296(1) and 265 of the Penal Code. When PW1 was testifying in court he mentioned one, Raphael Binali as being one of the persons from whom the stolen items D were recovered. At this juncture the trial magistrate ordered that the charge be amended and the said Raphael Binali be joined as one of the accused persons. It is this step that led to the complaint.

Held: (i) Section 234(1) of the CPA only empowers the court to amend the charge E where, on the face of it, it appears to be defective either in substance or in form but does not empower the court to order that a person be included in a charge sheet;

(ii) by ordering the inclusion of Raphael Binali in the charge sheet the magistrate F had usurped the powers of the prosecution and for that reason he was biased.

Case Information

Order accordingly.

[zJDz]Judgment

Kazimoto, J.: A complaint has been lodged that the learned Principal District G Magistrate has assumed the powers of a prosecutor while at the same time adjudicating upon a case. It was alleged that the trial magistrate would not do any justice to the accused concerned as he appeared to be biased. On perusing the record I find the complaint valid. The circumstances of the allegation are as follows. H

The shop of the complainant was broken into and a number of items were stolen. In the course of investigation the three accused persons were charged with shop breaking and stealing c/s 296(l) and 265 of the Penal Code. A number of stolen items were recovered from various people, including one Raphael Binali whom the prosecution had called as a I witness against the original accused

persons. In the course of his evidence the complainant, PW1 said this: A

In the presence of the OCS at the police station he, the first accused, said clothes were at Mangaka with Raphael Binali. I went with Mr. Yahaya to Mangaka with the OCS Mangaka Police B Post and we recovered 7 pairs vitenge and kanga 9 pairs from his shop. I identified this. Raphael said he bought them from Aman from Namatumbusi village then he changed his story to say he had got them from 1st accused. C

At this juncture the trial magistrate interjected:

Court to P.P

Raphael Binali is outside the court house. D

Order: I strongly form an impression that Raphael Binali is a suspect. In that the charge is defective hence the prosecution's failure to include him as an accused person for reasons unknown.

He be brought into the dock and join his colleagues as an accused No. 4. E

The defective charge is amended accordingly by inclusion of the said Raphael Binali as the 4th accused as well as his personal particulars. This is done in terms of section 234(1) F Criminal Procedure Act.

Sgd. C.H. Msamati

Principal District Magistrate G

Section 234 (1) of the Criminal Procedure Act 1985 states:

(1)Where at any stage of a trial, it appears to the court that the charge is defective, either in H substance or form, the court may make such order for alteration of the charge either by way of amendment of the charge or by substitution or addition of a new charge as the court thinks necessary to meet circumstances of the case unless, having regard to the merits of the case, the required amendments cannot be made without injustice and all amendments made under I the provisions of this sub-section

1989 TLR p46

KAZIMOTO J

shall be made upon such terms as to the court shall seem just (emphasis added). A

In my view subsection 1 of section 234 CPA only empowers the court to amend the charge where, on the face of it, it appears to be defective either in substances or in form. B It does not empower a court of law to order that a person be included in a charge sheet. The fact that a would be suspect, in the mind of the magistrate, has been omitted cannot make the charge defective either in form or substance. The powers of the prosecution and the courts are clearly defined and understood. Clearly the learned C Principal District Magistrate had usurped the powers of the prosecution when he ordered Raphael Binali to be charged and abdicated his role as a magistrate. He had become the prosecutor and the magistrate at the same time against Raphael Binali. He has grossly erred in this.

The effect is that he has ceased to be an impartial adjudicator in the whole case. He is D biased. It has been said:

It is not merely of some importance, but it is of fundamental importance that justice should not only be done but should manifestly and undoubted be seen to be done. E

Nothing is to be done which creates even a suspicion that there has been an improper interference with the course of justice. F

This was the message of Lord Howart, the Lord Chief Justice of England in Rex v Sussex Justice exparte MacCarthy [1924]1K. B at page 259.

Dealing with the issue of bias Lord Denning M.R. has stated in Metropolitan Properties Co. (F.G.C.) Ltd. v Lannon [l969] 1 Q B 577 at page 599, with which G passage I respectfully agree, that:

In considering whether there was a real likelihood of bias, the court does not look at the mind of the justice himself or at the mind of the Chairman of the tribunal or whoever it may be,

who H sits in a judicial capacity. It does not look to see if there was a real likelihood that he would or did, in fact, favour one side at the expense of the other. The court looks at the impression which would be given to other people. I

1989 TLR p47

KAZIMOTO J

Even if he was as impartial as could be, nevertheless if right minded persons would think that, A in the circumstances, there was a real likelihood of bias on his part, then he should not sit. And if he does sit, his decision cannot stand. Nevertheless, there must appear to be a real likelihood of bias. Surmise or conjecture is not enough. There must be circumstance from B which a reasonable man would think it likely or probable that the justice or Chairman, as the case may be, would or did favour one side unfairly at the expense of the other. The court will not inquire whether he did, in fact, favour one side unfairly. Suffice it that reasonable people might think that he did. The reason is plain enough. Justice must be rooted in confidence, and C confidence is destroyed when right - minded people go away thinking: The judge was biased.

What did those people who attended the court on that day think when the magistrate D ordered Raphael Binali to be included in the charge sheet. They must have thought that Raphael Binali would not have full justice done to him, that he was going to be convicted because the learned principal district magistrate had already formed a "strong impression" against him. I have no doubt that the trial magistrate had already made up his E mind when he included Raphael Binali as an accused person. I find that the trial magistrate was biased.

And because the learned principal district magistrate has usurped the powers of the F prosecution and abdicated his role as a magistrate and this becoming a prosecutor and a magistrate and for the bias he had shown against Raphael Binali I now quash the whole proceedings and set aside the order to charge Raphael Binali, who incidentally the DPP had entered a nolle prosequi in his favour, and order that the case be tried afresh G against the original accused as per charge sheet. It is directed that the trial de novo should be conducted by another magistrate of competent jurisdiction.

H Order accordingly.

1989 TLR p48

A

[zRPz]TANZANIA KNITWEAR LTD v SHAMSHU ESMAIL 1989 TLR 48 (HC)

Court High Court of Tanzania- Dar Es Salaam

Judge Mapingano J

15 April, 1989

Flynote

Civil Practice and Procedure - Applications - Whether an application which unites two B distinct applications in one application, namely an application for setting aside a temporary

injunction and an application for injunction is bad at law - 0.2 r. 3(1) of the Civil Procedure Code.

Civil Practice and Procedure - Injunction - Notice requirement - Circumstances where court C can grant injunction without issuing notice to the opposite party - 0.37 r. 3 of the C.P.C.

Limitation - Temporary injunction - Whether the Law of Limitation Act, 1971 does apply to an application for temporary injunction.

Company Law - Company - Power to increase capital - The Companies Ordinance, Cap. D 212 Section 51(2).

-Headnote

This application was made under 0.37 rr. 1 and 4 and section 68 of the Civil Procedure Code. The applicant wanted an order for temporary injunction issued and the E respondent be restrained from floating 800 shares. Counsel for the applicant submitted ex-parte injunctions could only be granted in special circumstances and that there were no such circumstances in this case. The learned counsel submitted that the floating of 800 F shares was illegal as it contravened section 51(2) of the Companies Ordinance. He added that the floating of 800 shares was invalid as it was designed to oppress the applicant. Counsel for the respondent attacked the applicant's application. Though he cited no authority in support of his contention, he said that it was bad at law. The learned counsel added that the application which sought the discharge to the injunction was G time-barred. As regards the floating of 800 shares, Counsel for the respondent submitted that it was done in good faith.

In reply counsel for the applicant submitted that the joinder of two applications was not prohibited by law. Against the proposition that the application for discharge of H temporary injunction order was time barred he submitted that the provisions of the law of limitation were not applicable to the matter.

Held: (i) The combination of two applications in one is not bad in law since courts of I law abhor multiplicity of proceedings;

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MAPIGANO J

(ii) the law of Limitation Act, 1971 does not apply to an application for A discharge of temporary injunction;

(iii) under 0.37 r. 3 of the Civil Procedure Code the requirement of giving notice to the opposite party is mandatory. Where it appears that the delay in the issuance of notice will defeat the object of the injunction, the notice could be dispensed with; B

(iv) where all shareholders are offered purchase of new shares on a pro-rata basis, the applicant cannot be heard to complain that the resolution was oppressive to him;

(v) by section 51(2) of Cap. 212 the power to increase capital must be C exercised by the company by passing a resolution in its general meeting and this means that directors have no similar powers.

Case Information

Order accordingly.

Kesaria, for the applicant D

Ismail, for the respondent.

[zJDz]Judgment

Mapigano, J.: Let me state the background first. The plaint says that the applicant's employment as manager of the respondent company was terminated by a resolution E passed by an extraordinary meeting of the directors held on 23/l2/86, on account of gross mismanagement; that the applicant has not abided by that resolution and continues to manage the business of the company to the detriment of the company; and that unless he is restrained from managing the business of the company the company will continue to F suffer considerable loss. Wherefore the respondent prays that the termination be affirmed and the applicant be restrained, permanently, from managing the business of the company. It is to be noted that the applicant is not only a shareholder in the company but a director as well. G

On 22/1/87 the respondent made an ex-parte chamber application, seeking an order for temporary injunction against the applicant to restrain him from entering the business premises of the company pending the determination of the suit. On the same day the learned J.K. granted the application, observing that the applicant's employment had H already been terminated.

The applicant filed his W.S.D. on 23/6/87. It is evident from that pleading and the materials now before this court that the applicant was aware, at the time of filing the W.S.D., of the existence of the ex-parte injunction and that the injunction was granted I when he had already resigned from the management of the company.

1989 TLR p50

MAPIGANO J

On 3/l2/87 a resolution was passed by the directors of the company to issue 800 shares. A It was also resolved that "each shareholder be offered to purchase the said shares according to individual shareholding".

The present application was brought on 3/2/88. The application is made under 0.37 rr. l B and 4 and section 68 of the C.P.C. The applicant wants the order for temporary injunction dissolved and the respondent be restrained from floating the 800 shares. The reasons are stated in his affidavit, particularly in paras 3, 4 and 5. He has deposed that the management of the company is now in the hands of Messrs Thakrar and Lakhani and C alleged that the company's business does not receive proper attention because one "is in London since the last six weeks" and the other "is always engaged in his other business." He has contended that the proposed issue and allotment of 800 shares is invalid because the meeting that passed the resolution in that respect was not called in D accordance with the rules of the Articles of Association and because the said issue was meant to oppress him.

The respondent has opposed the application and Mr. Thakrar who is one of the directors has sworn and filed a counter-affidavit. In paras 3, 7, 8 and 9 he repeats the E charge of gross-mismanagement against the applicant and illustrates the same. In para 4 he alleges that the applicant has made some efforts to close down the business of the company, which allegation is not disputed. In para 10 he asserts that the issue of 800 shares is not ill-motivated but is an action the directors believe to be in the best interests F of the company. And in para 12 he points out that the company is now managed by one Mr. Edwini and not Messrs Thakrar and Lakhani.

Mr. Kesaria, learned counsel for the applicant, has submitted in regard to the ex-parte temporary injunction, that such injunctions are granted only in exceptional circumstances. G He has cited the case of Janmohamed v Madhani (l953) 20 EACA 8. In his opinion there was no such circumstance in this case. With regard to the floating of the 800 shares, Mr. Kesaria has put forward two propositions. The first proposition is that it was illegal because it contravened the provision of section 51 (2) of the Companies H Ordinance. The second is that it is invalid because it was designed to oppress the applicant, and the learned advocate has cited Clemens v Clemens Bros. Ltd. [l976] 2 All E.R. 268 in support.

Mr. Ismail who represents the respondent has attached the application for being duplex I in that the applicant has united two distinct applications in one application, namely an application for

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MAPIGANO J

setting aside the temporary injunction and an application for injunction order to stop the A floating of the 800 shares. Mr. Ismail has submitted that the application is bad at law on that score, but has not backed up his contention with any authority. Next, learned counsel has submitted that the application, to the extent that it seeks the discharge of the injunction order is time barred. He has relied on the provision of Article 21, Part B III, First Schedule to the Law of Limitation Act, 1971. And as regards the application, to the extent that it relates to the floating of the 800 new shares, he has pointed out that the shares have already been floated and remarked that the applicant should have been advised to apply for a revocation of the issue rather than an injunction. In any case, he C contended, the creation and the floating of those shares was done in good faith and that neither the company nor the applicant has been hereby prejudiced. Lastly Mr. Ismail has informed this court that the applicant has already instituted legal proceedings D in a bid to have the company liquidated.

In reply Mr. Kesaria has contended that the joinder of two applications is not prohibited by law. In his opinion it is inferable from 0.2 r. 3(1) of the C.P.C. that such joinder is, on the contrary, countenanced. Against the proposition that the application E for discharge of the temporary injunction order is time barred, Mr. Kesaria has replied, if I understand him correctly, that the provisions of the Law of Limitation Act were not applicable to the matter.

I now proceed to decide the various points that have been raised in this application. In my opinion the combination of the two applications is not bad at law. I know of no law F that forbids such a course. Courts of law abhor multiplicity of proceedings. Courts of law encourage the opposite.

I am also disposed to share Mr. Kesaria's view that the Law of Limitation Act, 1971, does not apply to an application for discharge of temporary injunction. For very G obvious reason. An order for temporary injunction is essentially an interim order. But it may last several years and circumstances may change and the order may become unduly harsh or unnecessary or unworkable. It would thus be improper and unwise to make such an order the subject of any law of limitation. H

On the question whether the learned J.K. was justified to dispense with service of notice to the applicant, I have to refer to the wording of 0.37 r. 3 of the C.P.C. It seems to me that the requirement of giving notice to the opposite party is mandatory. I The exception is where it appears that the delay involved in the

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MAPIGANO J

issue of notice will defeat the object of the injunction. As mentioned above, the reason A given by the J.K. for dispensing with the issue notice was that the services of the applicant had been terminated. However, the materials deposed by Mr. Thakrar in his affidavit of 20/1/87, which depositions stand uncontroverted to-date, I think that the application satisfied the requirement of 0.37 r.3 of the C.P.C. and I am satisfied that B the injunction was not irregular.

I turn to the issue of the 800 new shares. The first point to consider and decide is whether the resolution of the directors in that respect was ill-motivated i.e. whether it C was framed and passed in order to divest the applicant of his rights as a shareholder holding 300 shares in the respondent company. In Clemens v Clemens Bros. Ltd. to which Mr. Kesaria has made reference and which is about the leading case on the point, certain resolutions to increase the capital and issue of new shares in such a way D as to deprive the plaintiff, a shareholder, of her "negative control" in the defendant company were set aside as having been passed by an inequitable use of the defendant's voting rights. These were the facts of the case: The plaintiff owned 45% of the issued share capital of the defendant company and her aunt hold the remaining 55%. Although E at one time both the plaintiff and her aunt had been directors of the company, at the relevant time the plaintiff was no longer a director. The aunt and her fellow directors proposed to increase the company's share capital by the creation and issue of further shares. The proposal was to issue them as 200 to the directors and as to the remaining F 850 to a trust for long-serving employees. Resolutions to give effect to these proposals were passed at an extraordinary general meeting notwithstanding the plaintiff's proxy voting against them. The plaintiff was concerned that the proposed share issue would dilute her own holding and voting power from 45% to marginal less G than 25%, in other words, she would lose "negative control". She commenced proceedings against the company and the aunt seeking a declaration that the resolutions were oppressive, and an order setting them aside. Forster, J. acceded and made the order asked for having formed the view that the resolutions were "specifically and H carefully designed to ensure not only that the plaintiff can never get control of the company but deprive her of what has been called her negative control" i.e. the power to prevent the passage of any special resolutions of which she disapproved.

It seems to me that the analogy between Clemens case and the present case fails on a I vital point. Here it has not been established that the alteration of capital by the creation of the new shares and

1989 TLR p53

floating the same was meant to delete the applicant's holding and voting power. As we A have seen, all the shareholders including the applicant were offered to purchase the new shares on a pro-rata basis and in the circumstances I fail to understand how the applicant can be heard to

complain that the resolution was oppressive to him. I accept the version of the respondent that the increase of the capital and the issue of the new B shares was solely done in order to strengthen the company's capital base and that it suited the requirements of the company.
With regard to the allegation that the company is being mismanaged, I am not satisfied C that is actually the case. In any case I do not think that the discharging of the injunction order would be the solution of the problem.
Finally, I come to the question whether the passing of the resolution contravened the provision of the Companies Ordinance. It is not in dispute that the resolution was D passed by the directors at their meeting held on 3/l2/87. By section 51(2) of the Companies Ordinance the power to increase capital must be exercised by the company by passing a resolution in a general meeting and directors have no power to exercise it. The resolution was, therefore, illegal and should not be allowed to stand. I set it aside. No order for costs. E
Order accordingly.
1989 TLR p53
F
[zRPz]STEPHEN NGONYANI v REPUBLIC 1989 TLR 53 (HC)

Court High Court of Tanzania- Dodoma
Judge Ruhumbika J

18 April, 1989 G
Flynote
Criminal Practice and Procedure - Successive trials - Statutory duty on the magistrate taking over - Whether it is mandatory for accused to be informed of his right to have witnesses who had previously testified resummoned and reheard. H
-Headnote
Appellant, from a trial which could not be completed by one magistrate and was taken over by another magistrate, was convicted of the offence of stealing by a person employed in the public service c/ss 265 and 270 of the Penal Code. Appellant I appealed against both conviction and sentence. Counsel for the appellant argued on
1989 TLR p54
RUHUMBIKA J
appeal that failure by the second trial magistrate to inform the appellant of the right to A have witnesses who had given evidence before the first trial magistrate resummoned and reheard was prejudicial and caused injustice to the appellant and abrogated the provisions of s.2l4(2)(a) of the Criminal Procedure Act, 1985. B
Held: Section 214(2)(a) of the Criminal Procedure Act imposes a mandatory duty on a second trial magistrate to inform the accused of his right to have witnesses who have testified recalled and testify afresh. Failure to comply with the section is an incurable irregularity. C
Case Information

Appeal allowed.
Cases referred to.

1. R. v Maulidi s/o Mkuba [l974] LRT n. 44
2. Romenisele s/o Elisawe v R. [l967] HCD no. 75. D

[zJDz]Judgment
Ruhumbika, J.: The appellant, Stephen Ngonyani, was convicted by the District Court of Dodoma of the offence of stealing by a person employed in the public service c/s 265 of the Penal Code. E
He was charged with having stolen various sums of money, in four different counts. The money was supposed to be paid out as salaries to junior policemen serving in the Field Force Unit of the Police Force at Dodoma, where the appellant was attached and F served as a Police Inspector and Officer Commanding Field Force Unit.
The appellant was found guilty and convicted on all the four counts and sentenced to concurrent sentences under the Minimum Sentences Act, l972 as follows:

lst Count: Three years of imprisonment. G
2nd Count: Three years of imprisonment.
3rd Count: Three years of imprisonment.
4th Count: Five years of imprisonment.

The appeal is against the convictions and sentences. Mr. Rweyongeza, learned H advocate based at Dodoma, argued the appeal. Mr. Benne, learned Stated Attorney, represented the respondent Republic.
There were seven grounds of appeal in the petition of appeal, but Mr. Rweyongeza I dropped ground number two and argued on only six such grounds.
1989 TLR p55
RUHUMBIKA J
The first ground of appeal in the petition of appeal is couched as follows: A

That the learned Resident Magistrate being the second trial magistrate erred in law in denying the appellant the right to resummon witnesses who had testified before his predecessor. B

It was here argued for the appellant that failure by the successive trial magistrate to inform the appellant of his right to have the witnesses who had given evidence before the first trial magistrate re-summoned and re-heard was prejudicial and caused injustice C to the appellant. Therefore, such an omission was in abrogation of the provisions of section 214(2)(a) of the Criminal Procedure Act, l985 (Act No. 9 of l985), which provisions created a statutory duty on the successive magistrate to inform the appellant of his right under that section. D
According to the record of the lower court, the appellant was first tried by Mr. Mammba, District Magistrate, as from the 13th May, 1986, up to the 6th August, l986. He recorded the evidence of ten witnesses for the prosecution. E
On the 29th August, l986, Mr. Shangwa, Resident Magistrate, took over the trial. There were no reasons on record for this move but most likely Mr. Mammba, District Magistrate, might have moved on transfer. The successive magistrate did not comply with the provisions of section

214(2)(a) of the Criminal Procedure Act, l985. That is to F say, he did not inform the appellant that he had the right to have the witnesses who had testified before Mr. Mammba re-summoned and re-heard. The second trial magistrate continued with the hearing and recorded the evidence of PW11, PW12 and PW13. Thereafter, the prosecution case was closed. The appellant was put on his G defence, and made a sworn statement. He called no witnesses. The successive magistrate acted on the evidence of ten witnesses for the prosecution who gave evidence before Mr. Mammba, and acted on the evidence of only three witnesses who testified before him. Most of the material evidence had been given by the witnesses H who gave evidence before the first trial magistrate. The second trial magistrate did not have the opportunity to observe their demeanor and evaluate their credibility.

Section 214 of the Criminal Procedure Act, l985, is as follows:

214(1) Where any magistrate, after having heard and recorded the whole or any part of the I evidence in any trial or

conducted in whole or part any committal proceedings is for any reason unable to complete A the trial or the committal proceedings or he is unable to complete the trial or committal proceedings within a reasonable time, another magistrate who has and who exercises jurisdiction may take over and continue with the trial or committal proceedings as the case may be and the magistrate so taking over may act on the evidence or proceeding recorded by B his predecessor and, may in the case of a trial re-summon the witnesses and recommence the trial or the committal proceedings or otherwise subject to subsection (2). C

(2)Whenever the provision of subsection (1) applies -

(a) in any trial the accused may, when such other magistrate commences his D proceedings, demand that the witnesses or any of them be re-summoned and re-heard and shall be informed of such right by the other magistrate when he commences his proceedings.

(b) the High Court may, whether there be an appeal or not, set aside any conviction E passed on evidence not wholly recorded by the magistrate before the conviction was heard, if it is of the opinion that the accused has been materially prejudiced thereby F and may order a new trial. (emphasis added).

There are several decisions relating to non-compliance with the provisions of (the G former) section 196 of the Criminal Procedure Code. See the provisions of the new section 214 of the Criminal Procedure Act, l985. But the court was referred to only one of those decisions. That is the decision in the case of R. v Maulidi s/o Mkuba [l974] LRT no. 44. The trial of the accused in that case was conducted by two H different magistrates. The second magistrate did not comply with the provisions of section l96(1) of the Criminal Procedure Code. The case went before the High Court on revision. The court held, inter alia, that:

(1) Where a magistrate proceeds with a trial under the provisions of s. 196 Criminal I Procedure Code, Cap. 20

from where his predecessor had left off, it is his duty to bring to the notice of the A accused person of his right to have the witnesses or any of them who have already testified before the predecessor magistrate in the same case, re-summoned and re-heard as is required by the proviso to s.196(1) Criminal Procedure Code. B

(2) ...

(3) The requirement is essential as it is intended to give an opportunity to the trial magistrate to hear the evidence himself in order to make a sound assessment of the evidence as a whole. C

(4) ...

(5) ...

(6) The High Court on appeal is not bound to uphold such conviction if it is of the opinion that the accused has been materially prejudiced. D

(7) ...

(8) ...

In that case, the conviction was quashed and the sentence set aside. E

Mr. Benne, learned State Attorney, conceded that the second trial magistrate did not comply with the provisions of section 214(2)(a) of the Criminal Procedure Act, 1985. However, he argued that the omission did not prejudice the case for the appellant because ten witnesses were heard by the first trial magistrate and three were heard by the second trial magistrate. F

With respect to the learned State Attorney, it is difficult to see the logic of his argument. Because it is reasonable to say that the second trial magistrate was at a greater disadvantage as he was faced with a situation whereby he had to evaluate and act on G the evidence of ten witnesses from whom he did not record that evidence and had no opportunity of assessing the demeanor and credibility of such witnesses. Of the two magistrates, it is obvious that the first trial magistrate was better placed in the understanding of the case as against the second trial magistrate. H

It is obvious that the appellant was materially prejudiced by the manner his trial was conducted by the two magistrates.

The words used in section 214(2)(a) of the Criminal Procedure Act, l985, are: "Shall be informed of such right". That is to say, the second magistrate who took over the trial of the appellant should have informed him of his right to have the witnesses who had I given

evidence before Mr. Mammba or any of them re-summoned and re-heard. In the A earlier case of Remenisele s/o Elisawe v R. [l967] H.C.D. n 75, while stressing the essence of complying with the provisions of section l96 of the Criminal Procedure code, the court had this to say:

(1) The discretion given to a magistrate by the Criminal Procedure Code section l96 B should be exercised with great care, for the primary purpose of the hearing is to permit the court to observe the demeanor and evaluate the credibility of all the witnesses. In the present case the charges were grave and the accused vigorously C contested the allegations of the prosecution's witnesses.

(2) Criminal Procedure Code section l96(a) permits the accused to demand that witnesses heard by the first magistrate be re-summoned and re-heard and provides D that the accused "shall be informed of such right by the second magistrate ..." There is no record that the accused was so informed.

In that case, the accused was convicted of forgery and theft. The magistrate who E commenced the case heard the evidence of the prosecution and after a recess of three months, heard some of the defence witnesses. After another recess a second magistrate replaced the first who had been transferred to another district. Exercising his discretion under the Criminal Procedure Code section l96, the second magistrate elected not to F re-commence the trial but to hear only the remaining portion of the case. A new trial was ordered in that case. This earlier case was cited with approval by this court in the subsequent case of Maulidi (supra).

The appellant was convicted on the 17th June, l987, and his case, as observed earlier, G involves four counts relating to various sums of money he is alleged to have stolen in the course of his employment.

In the interests of justice, the course open to the court is to order a hearing de novo.

Accordingly, under the provisions of section 366(1)(a)(i) of the Criminal Procedure H Act, 1985, the proceedings in the lower court are quashed and the decision therein set aside and it is hereby ordered that the appellant be re-tried in the District Court of Dodoma but before another magistrate with competent jurisdiction to try the case. I

Appeal allowed.

1989 TLR p59

A

[zRPz]MUNISI MARKO NKYA v REPUBLIC 1989 TLR 59 (HC)

Court High Court of Tanzania- Arusha

Judge JH Msoffe PRM (Extended Jurusdiction)

24 April, l989 B

Flynote

Criminal Law - Wildlife Conservation - Government trophy - Whether eland meat is Government trophy - Wildlife Conservation Act, l974 (Act No. 12/1974).

Criminal Practice and Procedure - Plea of "It is true" - Whether an equivocal plea of guilty - Admission of facts read over by prosecution - Whether makes a plea unequivocal. C

Criminal Practice and Procedure - Sentencing - Practice - Ability to pay fine - Mitigating factors - Whether material in sentencing -Committal to High Court for sentencing. D

-Headnote

One Kulasauko Faraji Kimaro was found selling eland meat. On being asked by a Game Officer as to how he came to possess the same, he mentioned the appellant as the person who brought him the meat to sell. The appellant was, on the basis of this information arrested and charged in court. In the District Court the appellant was E charged with the offence of unlawful possession

of Government trophy contrary to section 67(1)(2) of the Wildlife Conservation Act, 1974. When the charge was read over and explained to him he is recorded to have pleaded guilty in the words "it is true". A plea of guilty was accordingly entered by the trial court, and facts read out and F admitted by the appellant. Appellant was convicted and a sentence of 2 (two years) passed against him. He is appealing against conviction and sentence, alleging that his plea was equivocal.

Held: (i) An accused's plea should as near as possible be recorded as the accused G says it. A plea of "It is true" without amplifications is unsatisfactory as it may not amount to an admission of every constituent element of the charge(s). (see Bujukuno v R. [l97l] HCD n 446);

(ii) appellant's plea was not remedied by the applicant's admission of the facts H read over to him by the prosecution because the said facts did not disclose that the appellant was found in unlawful possession of Government trophy, i.e. eland meat;

(iii) the facts read over to the appellant disclosed that another person by the name of Kulasauko Faraji Kimaro was the person found in possession of eland meat I which he was selling;

1989 TLR p60

JH MSOFFE PRM - EJ

(iv) the appellant should not have been convicted of unlawful possession of A Government trophy, notwithstanding his admission of the facts;

(v) having convicted the appellant, the trial District Magistrate should have investigated the financial capability of the appellant to pay a fine; B

(vi) it was wrong in the first place to have charged and convicted the appellant under s. 67(1)(2)(a) of the Act No. 12 of 1974. Eland is a trophy which fall under part II of the First Schedule to the Act. The charge ought to have been preferred under s. 67(1)(2)(c)(i). Appellant's conviction quashed and sentence set aside. C

Case Information

Appeal allowed.

[zJDz]Judgment

J.H. Msoffe, PRM - E.J.: On 4/11/88, the appellant appeared before the District D Court of Hai at Hai, on a charge of unlawful possession of Government trophy c/s 67 (1) (2) (a) of the Wildlife Conservation Act No. 12/74. When the charge was read over and explained to him as is the usual practice, he is recorded to have pleaded guilty E in the words "it is true". A plea of guilty was accordingly entered by the trial court, and facts read out and admitted by the appellant. He was accordingly convicted. It was not until 9/11/88 however, that a sentence of 2 (two) years imprisonment was pronounced against him. He is now appealing against conviction and sentence, alleging among other things that his plea was equivocal. F

The facts before the trial court were briefly as follows: That on 9/9/88 One Kulasauko Faraji Kimaro was found selling eland meat at Kwasadala village. On being asked by a G Game officer, one Siyael K. Mosha, as to how he came to possess the same, he mentioned the appellant as the person who brought him the meat in question for sale purposes. The Game officer went to report with the police at Bomang'ombe Police Post. Accordingly he was accompanied back by some

policemen. Before the police, H the said Kulasauko Faraji Kimaro, who then had only 5 kilogrames, worth 350/= of the meat remaining, maintained his earlier story that the meat had been brought to him by the appellant. The appellant was, on the basis of this information, arrested and charged in court.

Mr. Alute, learned State Attorney who appeared for the Respondent Republic before I me, has urged that the conviction is not sustainable on the ground that the appellant's plea was equivocal.

1989 TLR p61

JH MSOFFE PRM - EJ

I agree. It is clear now that according to the proceedings when the charge was read A over to the appellant he pleaded "It is true". This court had always held that an accused's plea should as near as possible be recorded as the accused has said. A plea of "It is true" without amplifications is certainly unsatisfactory as it may not amount to an B admission of every constituent element of the charge(s). Indeed this was the same point emphasized by this court in Bujukuno v R. [1971] H.C.D. no. 446 where Makame, J. (as he then was) said, and I quoted:

In my view the appellant did not admit every constituent of the charge and the record does not C show that he pleaded guilty to every element of it unequivocally.

Mr. Alute, learned State Attorney raised another issue for consideration by this court, D and this is whether the appellant's plea was remedied by the appellant's admission of the facts after they had been read over to him by the prosecution. I was referred to the case of Sebastian Gilberty v R. [1970] H.C.D. no. 281 where Mnzavas, Ag. J. (as he then was) had this to say, and I quote: E

The appellant having admitted the facts the final question to be decided is whether admission of the facts remedies the equivocal plea of guilty. In Paul Mathias v R. [1970] HCD 209. Georges, C.J. when dealing with the question whether the accused plea was F unequivocal said: Quite often an equivocal plea ... can be remedied by a full statement of all the facts needed to constitute the offence, and an admission by the accused person that these facts are true.

In our case, the appellant admitted that the facts were correct as narrated by the G prosecution but the issue for consideration is whether the facts as narrated disclosed an offence against the appellant. With respect to the trial magistrate, the facts did not disclose that the appellant was found in unlawful possession of government trophy i.e. H the eland meat. On the contrary the facts disclosed that another person by the name of Kulasauko Faraji Kimaro was the person found in possession of the eland meat which he was selling. The appellant, therefore, should not have been convicted of unlawful possession of government trophy, notwithstanding his admission of the facts. I

1989 TLR p62

JH MSOFFE PRM - EJ

Mr. Alute, learned State Attorney again invited this court to look at the sentence A imposed on the appellant, and consider if it is in conformity with usual practice of the courts in sentencing. A look at the record will show that the trial magistrate was minded to fine the appellant if he was able to show an ability to pay a fine. As it turned out to B be, the appellant said he was not

in a position to pay any fine; and was accordingly sentenced to the 2 year term of imprisonment. To appreciate the point being advanced here in full the relevant trial court's proceedings of 9/11/88 are reproduced hereunder thus: C

Date: 9/11/88

Coram: S. Musa - District Magistrate

Insp. Mwanga for pros.

Massawe B/C.

Accused present D

FINDING AS TO FINANCIAL POWER

Accused: I will not tell as to what salary I am receiving per month. If a fine of 3,000/= could be E imposed against me I could not pay. I could not pay a fine of 20,000/= or 30,000/= either. I leave everything to the court to decide.

SENTENCE F

Accused is a first offender and the meat was possessed due to poaching, the act which is ceased in Tanzania. The offence therefore is at an increase in Tanzania, hence different sentence is looked for. I inquired into, as to the accused's means to pay the fine and I am G satisfied he cannot pay the fine, the thing I cannot do because he cannot pay the fine. However, I find no special circumstances to be lenient to an accused. Accused to serve a term of imprisonment for two years. H

Sgd: Musa,

District Magistrate,

9/11/88

With respect the learned trial District Magistrate adopted a rather unusual approach. I Having convicted the appellant, surely there

1989 TLR p63

JH MSOFFE PRM - EJ

was nothing wrong in investigating into his financial capability to pay a fine. But it is A clear here that the magistrates, who does not say in so many words, was prepared to impose a fine if the appellant had the capability to raise money for one.

If that was so, then he should not have changed the nature of the sentence by aggravating it simply because the appellant could not pay a fine. I appreciate that s. B 67(1)(2)(a) of the Wildlife Conservation Act No. 12/74 under which the charge and conviction is based, is couched in mandatory terms, and the magistrate felt he had to impose the maximum term of imprisonment now that the appellant had said he could not pay a fine. But, with respect, if the learned trial magistrate had carefully researched, C he would have actually found that it was wrong in the first place to charge and convict the appellant under s. 67(1)(2)(a) of the said Act. It is clear from the evidence that the trophy the subject of the charge is "eland meat". Eland is a trophy which falls under part II of the First Schedule to the Wildlife Conservation Act No. 12/74. The D proper charge therefore ought to have been preferred under s. 67(1)(2)(c)(i) of the same Act. If the trial court had invoked this latter provisions, no doubt, it would have been left with the duty to impose a sentence less than the 2 year term of imprisonment. E Better still, if

the trial court was minded to find special mitigating factors i.e. small value of the meat (350/=), the appellant being a first offender etc. it could have invoked the provisions of s. 79 (1)(b) of the same Act, and commit him to the High Court for sentencing with recommendation for leniency and the grounds thereto; and no wonder F the appellant could have ended up at the end of the day with a far more lighter sentence.

In the final result the appellant's conviction cannot be upheld. It is accordingly quashed and sentence set aside. The appellant is to be released from prison forthwith unless he G is otherwise lawfully held therein.

Appeal allowed.

1989 TLR p64

A

[zRPz]SIMON KABAKA DANIEL v MWITA MARWA NYANG'ANYI AND 11 OTHERS 1989 TLR 64 (HC)

Court High Court of Tanzania- Mwanza

Judge Mwalusanya J

6 May, l989 B

Flynote

Civil Practice and Procedure - Appeals - Leave to appeal to the Court of Appeal - Whether there is a point of law fit for consideration in that court.

Civil Practice and Procedure - Stay of execution - Whether High Court has jurisdiction to C entertain an application for stay of execution - Rule 9 (2) (b) Tanzania Court of Appeal Rules GN No. 102/l979.

Customary Law - Whether customary law is good law or is superseded by statutory law - Proviso to section 9(3) JALO Cap. 453. D

Court of Appeal Rules - Stay of execution -Whether High Court has jurisdiction to entertain an application for stay of execution - Rule 9(2)(b) Tanzania Court of Appeal Rules.

-Headnote

Applicant brought two applications to the High Court, to wit, leave for appeal to the E court of Appeal on the ground that there is a point of law to be resolved by that court and an application for stay of execution pending final determination of the intended appeal by the Court of Appeal. F

Held: (i) High Court has no jurisdiction to entertain an application for stay of execution pending determination of an appeal to the Court of Appeal since that jurisdiction is vested in the Court of Appeal;

(ii) in an application for leave to the Court of Appeal the applicant must G demonstrate that there is a point of law involved for the attention of the Court of Appeal and, if the point in question involves customary law, it must be shown that the customary law in question is not superseded by statutory law.

Case Information
Application dismissed. H
Case referred to.
1. Maagwi Kimito v Gibeno Warema: C.A.T. (MZA) Civil Appeal No. 20 of l984 (unreported) I
[zJDz]Judgment
Mwalusanya, J.: There are two applications filed by the
1989 TLR p65
MWALUSANYA J
applicant Mr. Simon Kabaka Daniel through his advocate Mr. Magongo. The first A application is for leave to appeal to the Tanzania Court of Appeal on the ground that a point of law is involved fit for consideration by that court. The second application is for a stay of execution pending the final determination of the intended appeal before the Tanzania Court of Appeal. The twelve respondents resisted the two applications in B person.
As regrds the second application it appears this court has no jurisdiction to entertain it. The application for the stay of execution is reportedly made under rule 9(2)(b) of the Tanzania Court of Appeal Rules GN. No. 102/1979. But the said rule says that the C application has to be made to the 'court' which is defined to mean the Tanzania Court of Appeal. I am therefore unable to entertain this application.
As regards the first application counsel for the applicant Mr. Magongo made gallant efforts in arguing the case of his client but I am afraid, no point of law has been made D out fit for consideration by the Tanzania Court of Appeal. The main plank of his argument is that the practice of attachment of cattle before judgment and placing them in the custody of the plaintiffs in civil suits in Tarime District, is a practice which E amounts to a recognised customary law of the Kuria tribe. Both parties in this case are Kurias. So he argues that the District Court and the High Court should not have disturbed the decision of the Primary Court which placed the cattle in the custody of the plaintiff before judgment. He contended that the District Court and High Court F should have appreciated that this matter was governed by the principles of Kuria customary law to the exclusion of principles derived from English law to wit rule 17 of the Primary Courts Civil Procedure Rules and cited in support the case of Maagwi Kimito v Gibeno Warema: C.A.T. (MZA) Civil Appeal No. 20 of 1984 G (unreported) as well as s.9 of the Judicature and Application of Laws Ordinance Cap 453. The District Court had held that the practice of attachment of cattle before judgment and placing them in the custody of the plaintiff was contrary to the express provisions of rule 17 of the Primary Courts Civil Procedure Rules. That rule holds that if there is any attachment before judgment, then the attached cattle are to be placed in H the custody of the court and the plaintiff bears the costs of their upkeep. The High Court nodded in agreement, that, that was the correct statement of the law.
From the foregoing it is clear that Mr. Magongo has missed the point. First there was I no question of any Kuria customary law
1989 TLR p66
MWALUSANYA J

which was involved here. What we had was simply a practice by the Primary Courts in A Tarime District attaching cattle before judgment and placing them in the custody of the plaintiff. That was done by the courts and not by any order of a specific tribal community in Tarime District. To say that there was any customary law involved in the process is not only vulgar and specious but just a figment of the fertile imagination of B Mr. Magongo. The Primary Courts by their regular practice cannot make a customary law for the people in the area as it has been urged upon me.

In any case even if there was a Kuria customary law which allows attachment of cattle C before judgment and placing them in the custody of plaintiff, I would still hold that, that customary law in question is no longer good law as it has been superseded by statutory law vis. rule 17 of the Primary Courts Civil Procedure Rules. It is clearly stated under the proviso to s. 9(3) of the Judicature and Application of Laws Ordinance Cap 453 that: D

> Provided that the court shall not apply any rule or practice of customary law which is ... superseded by any Ordinance or Act of Tanzania. E

And, the case of Maagwi Kimito (supra) which has been cited by counsel is very clear on this point as on page 8 of the judgment it stated:

> The customary laws of this country, now have the same status in our courts as any law, F subject only to the Constitution and any statutory law that may provide to the contrary.

I have underlined for emphasis the crucial words in the above quotation. Now in the G case at hand, it is crystal clear that there is a contrary statutory law which has superceded any Kuria customary law on the matter and that statutory law is rule 17 of the Primary Courts Civil Procedure Rules. Moreover it is naive on the part of Mr. Magongo to argue that rule 17 of the Primary Courts Civil Procedure Rules is derived H from some English Rule as those Civil Procedure Rules were passed by our Parliament or its agents. That sufficiently disposes of the main argument of Mr. Magongo.

There was another point that the applicant had not been heard before the District Court made the Revision Order in upsetting the judgment of the Primary Court. Mr. Magongo I said that was contrary to s. 22(3) of the Magistrate's Court Act No. 2 of 1984. I concede

that, that was an irregularity, but it is curable under s. 37(2) of the Magistrate's Court A Act as it did not occasion any failure of justice. This is because even if the applicant was heard, the District Court was duty bound to follow the express provisions of rule 17 of the Primary Courts Civil Procedure Rules which are loud and clear.

In the event I find that the first application raised no point of law fit for consideration by B the Tanzania Court of Appeal and therefore leave to appeal is refused. The two applications are dismissed with costs.

C Order accordingly.

D

[zRPz]THE NATIONAL BANK OF COMMERCE v SULEIMAN NASSOR ALLY 1989 TLR 67 (CA)

Court Court of Appeal of Tanzania- Mwanza
Judge Nyalali CJ, Makame JJA and Omar JJA

9 May, 1989
Flynote
Land Law - Acquisition - When completed. E
-Headnote
The appellant, the National Bank of Commerce, was allocated a parcel of land owned earlier by one Suleiman Nassor, deceased. The respondent, eldest son of the deceased claimed lawful ownership of the parcel of land and sued the appellant in the Resident Magistrate's Court for trespass. F
The appellant was allocated the land after the President, through the Minister for Lands, had given notice, which was published in the Official Gazette, of his intention to acquire this particular piece of land for public purposes. G
Both the trial and the first appellate courts were satisfied that formalities for the registration of document containing Notice of Acquisition were not completed and so there was no acquisition in law, and therefore the land still belonged to the former owner. Both courts found that the tort of trespass was established. H
The Court of Appeal of Tanzania construed the relevant provisions of the Land Acquisition Act, No. 47 of l967 and amendment thereof contained in Act No. 25 of l968.
Held: The acquisition of land under the Land Acquisition Act does not depend upon I registration formalities under the Land Registration
1989 TLR p68
NYALALI CJ, MAKAME JJA AND OMAR JJA
Ordinance, Cap 334. The acquisition is deemed complete when 6 weeks have expired A after publication of notice to acquire and no objection raised.
Case Information
Appeal allowed. B
[zJDz]Judgment
Nyalali, C.J., Makame and Omar, JJ.A.: This is a second appeal. The appellant, the National Bank of Commerce was allocated a parcel of land owned earlier by one Suleiman Nassor, deceased. The suit is prosecuted by his eldest son Ali Suleiman Nassor who is the respondent in this appeal. C
The suit was filed in the RM's Court by the present respondent alleging trespass into his land situated on Plot No. 75 Block '5' # Liberty Street, Mwanza Municipality, by the agents of the National Bank of Commerce after the President through the Minister of D Lands had given notice, which was published in the Official Gazette, of his intention to acquire this particular piece of land for public purposes. This piece of land was later allocated to the National Bank of Commerce, in Mwanza.

In order to determine whether there was trespass, certain laws like the Land E Registration Ordinance Cap. 334 were taken into account and ultimately it was decided that formalities for the registration of document containing Notice of Acquisition were not completed and so there was no acquisition legally effected and so the land still belonged to the former owner. This view was also held by the High Court F and the tort of trespass was established. We on our part hold a totally different view upon the proper construction of the Acquisition Act No. 47 of l967 and the amendment thereof contained in Act 25 of l968.

Section 5 of the Act empowers the Minister responsible for lands to authorize any G person to enter land with a view to examining it after the President had formed an intention to acquire it. In certain cases, three days notice to the occupier is deemed by the Act to be enough to enable such person to enter the enclosed space attached to a dwelling house.

When the intention to acquire has been formed then sections 6,7,8 and 25 apply. H Under section 7(1), the Minister may direct the person upon whom the notice is required to be served under sec. 6 (i.e. the respondent in this case) to yield up possession of such land after the expiration of the period specified in the notice, which period shall not be less than six weeks from the date of the publication in I

the Official Gazette. In this particular case the period was from 5/8/83 to 16/9/83. A Section 7(2) then states that:

> At the expiration of the period specified in subsection (4), the President and all persons authorized by him shall be entitled to enter into and take possession of such land accordingly. B

The period mentioned above expired on 16/9/83. There is evidence that notice was served on the respondent and he signed at the bottom of the copy of notice (see Exhibit D.2). Section 25 of the Act states: C

> Where a notice to acquire any land under this Act has been published in accordance with the provisions of section 8, the persons entitled to transfer the land shall, within six weeks of the publication of the notice in the Gazette, transfer and convey the same to the President D notwithstanding anything to the contrary contained in any written law or in any order made or issued by the court otherwise than under the provisions of this Act. E

So section 7 directs respondent by notice to yield possession after expiry of 6 weeks while section 25 requires the persons concerned i.e. the respondent to transfer and convey to the President the land so gazetted notwithstanding (and this is the new addition of the Amendment Act 25/68) anything contrary contained in any written law F or any court order made otherwise than under the provisions of this Act i.e. Acquisition Act.

About the formalities of registration which the two courts below were convinced they should be observed before the acquisition could be accepted as complete, the G Acquisition Act does not consider the requirements of Registration Ordinance Cap. 334 as the prerequisite to the completion of the Act of acquisition. The fact of acquisition will already have been established by the expiry of the period indicated in the notice published in the Gazette.

Section 19(1) envisages a situation where acquisition is prevented by an objection H raised within six weeks of the publication of the acquisition notice under section 6 and 7 of the Act followed by proceedings in court to determine a dispute concerning the intended acquisition. In such case, the President will not be required to complete the I acquisition unless he has entered into possession of the land in dispute or he fails "within one month of the judgment of

1989 TLR p70

NYALALI CJ, MAKAME JJA AND OMAR JJA

the court to intimate to the court that he does not intend to proceed with the A acquisition".

This suit should not have been filed at all because there was no trespass whatsoever. After the expiry of 6 weeks from the date of publication of the notice the respondent B should already have filed his objections but he did not do so and only 18 days later on 4/l0/83 he wrote to the Minister for Lands Housing and Urban Development (Ex. P.4) saying that during the publication of the notice of intention to acquire his land he was out of Tanzania and in August, l983 when he returned he was engaged in processing C matters of administration of his late father who died in July l983. He wanted to be allowed to build apartments and renting them to guests visiting Mwanza and this the letter said was for the benefit of society or public purposes. This letter was not answered and we are not surprised. The land was then given to National Bank of Commerce to build structures to house their bank. D

The main contention is the concurrent finding of the two courts that acquisition was not completed because registration had not been done before the plot was allocated to N.B.C.

We would emphasize that the acquisition of land under the Land Acquisition Act does E not depend upon registration formalities under the Land Registration Ordinance. The acquisition is deemed complete when the 6 weeks have expired after publication of the notice to acquire and no objection raised.

Section 29(b) provides that: F

> Where a certificate of Title is registered under section 28, such transfer disposition or certificate of title shall (there is deletion here of the whole reference to the requirements of G Cap. 334 Land Registration Ordinance by the Amendment Act 25/68) confer upon the President the land comprised or referred to in such transfer, disposition or certificate of title free from all adverse or competing rights, title, trusts, claims, and demands whatever etc. etc. H

In the circumstances we are of the view that section 29(b) deals only with the effect of a certificate of title granted and registered in default of the previous owner of land executing a deed of transfer under section 25 of the Act. It does not deal with the acquisition of land. We say that even if there is no registration of the land so acquired I the acquisition is complete. Registration merely

1989 TLR p71

endorses or certifies the fact of acquisition and ensures that the record of it is kept at its A proper place in the land registry and that it reflects the vesting of such land in the President.

In the result we allow the appeal and confirm the transfer of this land to the National Bank of Commerce as being proper. We find no trespass to have been committed whatsoever for the reasons given above. B

Appeal allowed.
1989 TLR p71
C
[zRPz]THE REGISTRAR OF BUILDINGS - HAWA BAYONA v KANIZ ABDULLA KERMALLI
1989 TLR 71 (HC)

Court High Court of Tanzania- Dar Es Salaam
Judge Bahati J

12 May, l989 D
Flynote
Landlord and Tenant - Rent Restriction - Jurisdiction - Whether High Court can hear appeals originating from the Housing Appeals Tribunal. E
Landlord and Tenant - Jurisdiction - Scope of jurisdiction of the Housing Appeals Tribunal to entertain cases from the Regional Housing Tribunal.
Civil Practice and Procedure - Assessors - Assessor absent during part of proceedings - F On return assessor appraised of what transpired during absence - Assessor allowed to advise Tribunal on verdict - Effect.
-Headnote
On an application in the Regional Housing Tribunal seeking, inter alia, an injunction against the Registrar of Buildings restraining him from evicting the applicant from the G premises, the Tribunal dismissed the application on the day of mention for non-appearance of the applicant. After the dismissal the applicant was evicted from the premises.
No application was filed in the Tribunal to set aside the dismissal of the application until H after the prescribed period had passed. Then an application for extension of time to make an application to set aside the dismissal order was filed. The application was heard by the Tribunal and dismissed there being no sufficient cause for the delay. The applicant appealed against the dismissal order in the Housing Appeals Tribunal which I allowed the appeal.
1989 TLR p72
BAHATI J
During the hearing of the appeal in the Housing Appeals Tribunal one of the two A assessors was absent for some time yet he was allowed to advise the Tribunal and coincidentally the chairman agreed with him.
The Registrar of Buildings appealed to the High Court against the decision of the B Tribunal. During the hearing the jurisdiction of the High Court was questioned as was the scope of jurisdiction of the Housing Appeals Tribunal on matters from the Regional Housing Tribunal. The effect of absence of an assessor during the hearing of the appeal was also considered. C
Held: (i) Section 43 of the Rent Restriction Act l984 means that decisions of the Tribunal are final and conclusive except where points of law or mixed law and facts are involved;

(ii) the High Court had jurisdiction to hear the appeal because points of law were involved; D

(iii) the Housing Appeals Tribunal does not have powers of a Regional Housing Tribunal;

(iv) the Housing Appeals Tribunal does not have powers of revision over proceeding in the Regional Housing Tribunal;

(v) the scope of powers of the Housing Appeals Tribunal is to admit, consider E and determine appeals originating from the Regional Housing Tribunal;

(vi) absence of one of the assessors during the hearing in the Housing Appeals Tribunal was an irregularity;

(vii) since it is on record that the absent member read the arguments advanced F in his absence, no failure of justice was occasioned;

(viii) the Regional Housing Tribunal should have granted the extension because it was not entirely the fault of the Respondent that no application for setting aside the G dismissal was made in time.

Case Information

Order accordingly.

Marando, for the Appellant

Kesaria, for the Respondent. H

[zJDz]Judgment

Bahati, J.: This is an appeal from the decision of the Housing Appeals Tribunal. I will give the background facts in this case. They are that the appellant filed an application in the Regional Housing Tribunal of Dar es Salaam against the Registrar of Buildings. I Although the proceedings in the Regional Housing Tribunal are

1989 TLR p73

BAHATI J

shown as application No. 179/86, what was filed to commence these proceedings is A titled "Plaint". This plaint seeks, among other things, an injunction against the Registrar of Buildings restraining him from evicting the plaintiff from the premises which she was occupying as family in the tenant who was abroad temporarily.

'This suit of application was never heard because it was dismissed for non appearance B of the plaintiff. The dismissal was done on a date which had been fixed for the mention of the case. After this dismissal, the appellant/plaintiff was evicted from the suit premises about a week afterwards. No application was filed to the tribunal to set aside the dismissal of the application until after the prescribed period within which to do so C had passed. Then an application for extension of time to make the application for setting aside the dismissal order was filed. It was eventually heard and the tribunal decided that no sufficient cause had been shown for the delay to apply for the setting D aside the dismissal order. An appeal was then lodged in the Housing Appeals Tribunal. The memorandum of appeal filed in the Housing Appeals Tribunal had only two grounds of appeal which were actually saying more or less the same thing, namely that the Regional Housing Tribunal erred in holding as it did. E

When the matter was set for hearing in the Housing Appeals Tribunal, Mr. Kesaria learned counsel who represented the appellant, not only argued the appeal according to the memorandum of appeal, but also went into the merits of the application for the setting aside of the dismissal order which was to be argued in the Regional Housing F Tribunal in case the Regional Housing Tribunal would have given extension of time to apply for the setting aside of the dismissal. He went further and argued now the dismissal order was wrong because it was made on a mention date. When Mr. Kesaria took this line of argument Mr. Marando, learned counsel, who was appearing for the G Registrar of Buildings objected to it but he was overruled. And so Mr. Kesaria was given the liberty to point out in detail every point he wanted dealt with even though it was not in his memorandum of appeal. Naturally, in reply Mr. Marando went through all the points raised by Mr. Kesaria and submitted counter arguments. H During the hearing of this appeal in the Housing Appeals Tribunal, one of the lay members left for medical treatment after Mr. Kesaria's submission. He only came back after Mr. Marando had submitted but before Mr. Kesaria had made a reply. Each I member was asked his opinion. The member who had been absent

for some time during the proceedings advised that the appeal should be allowed while A the second member advised that it should be dismissed. The learned chairman of the Housing Appeals Tribunal then wrote his judgment in which he allowed the appeal. The learned chairman went further in his judgment. He held that the dismissal of the B appellant's application was wrong and that each and every application pending in the Regional Housing Tribunal was being upheld and set aside. The learned chairman also ordered reinstatement into the suit premises of the appellant namely Kaniz Kermali.

The Registrar of Buildings through his advocate, Mr. Marando, learned counsel has C now appealed to this court setting out 11 grounds of appeal. I will now deal with these grounds. I will commence with the point concerning the jurisdiction of this court to hear this appeal. Mr. Kesaria, learned counsel, in his reply to the appeal, argued that under D section 43 of the Rent Restriction Act No. 17 of l984, the decision or determination by the Housing Appeals Tribunal shall be final and conclusive, and that an appeal from any other decision or determination of the Housing Appeals Tribunal shall lie to the High Court upon any point of law or mixed facts and law. Mr. Kesaria argued that no E other decision had been shown by the appellant which was to be appealed against. Mr. Marando, in reply, argued that there could not be envisaged a situation in which there would be another decision apart from that which the tribunal has made, and that what was meant by section 43 (proviso) was that the appeal could only lie to the High F Court when there is a point of law or mixed facts and law involved in the decision of the Tribunal. With respect to Mr. Kesaria, I agree with Mr. Marando's argument. As it is, the proviso to section 43 of the Rent Restriction Act does not appear to make much sense. I am of the view that the word "other" appearing in the proviso is misplaced and G it should have been omitted because otherwise the proviso is meaningless. I understand the section together with its proviso to mean that decisions of the tribunal are final and conclusive except where points of law or

mixed law and facts are involved. I therefore hold that this court has jurisdiction to hear this appeal because it is H quite evident that points of law are involved here.

The second point I wish to deal with concerns the powers of the Housing Appeals Tribunal. Mr. Kesaria submitted that the Housing Appeals Tribunal had all the powers of the Regional Housing Tribunals. With respect to Mr. Kesaria, I do not hold that I view. I am of the view that section 12 of the Rent Restriction Act

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BAHATI J

does not apply to the Housing Appeals Tribunal. Section 12(1) reads in part: A

> ... The Tribunal shall, in relation to every rent restriction area within its jurisdiction have powers to do all things ... B

My reading of section 12(1) is that it refers to Regional Housing Tribunals hence the phraseology "in relation to every rent restriction area within its jurisdiction ..." Hence section 12 talks of the powers of a Regional Housing Tribunal and not those of the Housing Appeals Tribunal. C

The 3rd point I wish to consider is whether the Housing Appeals Tribunal erred in dealing with matters which were not in the memorandum of appeal. Mr. Kesaria submitted that the Housing Appeals Tribunal was entitled to deal with such matters because it had the powers of the Regional Housing Tribunal and it had inherent D jurisdiction. Mr. Marando in reply argued that the Housing Appeals Tribunal did not have the right to deal with anything outside the appeal because section 42 of the Rent Restriction Act allowed it to deal only with matters appealed against. E

I have already held that the Housing Appeals Tribunal does not have the powers of the Regional Housing Tribunal. As for section 42 of the Act, it provides quite clearly that the Housing Appeals Tribunal shall have power to: F

> (a) (not relevant)
>
> (b) (not relevant)
>
> (c) confirm or reverse, amend or vary in any manner the decision or order appealed against. G

(I have underlined the above words for emphasis). Now, nowhere in the Act is it provided that the Housing Appeals Tribunal has got powers of revision over the proceedings in the Regional Housing Tribunal. Since the Housing Appeals Tribunal was dealing with and deciding on matters not appealed against it was acting ultra vires. Indeed even section 6 of the Act which established the Housing Appeals Tribunal H states that the Housing Appeals Tribunal shall have jurisdiction to admit, consider and determine appeals originating from Regional Housing Tribunal. No powers of revision are mentioned there or anywhere else in the Act.

In their opinion, one of the members of the Appeals Tribunal stated inter alia, in I directing himself to the appeal, that the Appeals

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Tribunal was not there to consider the merits of the dismissal order, thereby imply that A he was there to consider only the grounds of appeal. The second member also gave his opinion concerning the points under appeal only.

I therefore hold that the decision of the Housing Appeals Tribunal on matters not B appealed against cannot stand as the same are ultra vires. I will quash them and set them aside.

I will now deal with one more point before I consider the final point concerning extension of time to file an application to set aside the dismissal. It is in respect of the C absence of one of the members during part of the hearing of the appeal in the Appeals Tribunal and the subsequent re-appearance culminating with giving his opinion which was considered by the learned Chairman of the Appeals Tribunal. The relevant provisions are contained in section 11 of the Act. I wish to point out, however, that the positioning of section 11 just after the earlier section which talks of the Constitution of D the Regional Housing Tribunal does not make section 11 very clear. This is because one may take it to apply to Regional Housing Tribunals only, coming as it does immediately after a section talking about Regional Housing Tribunals. Be that as it may, E I am of the view that section 11 deals with proceedings of Regional Housing Tribunals as well as those of Housing Appeals Tribunal.

Now, section 11 provides in subsection (3) the procedure to be followed in case one or both the members who were present at the commencement of the proceedings is or are absent. It is that the Chairman and the remaining member (if any) may continue and F conclude the proceedings notwithstanding such absence. In our appeal, one member was absent for only part of the proceedings and then he came back and gave his views. This was an appeal and not a trial in which witnesses were involved. I am of the opinion G that this was irregular because it certainly went against what is provided in subsection (3) of section 11 of the Act. The question to be considered now is whether what took place in the appeal in the Housing Appeals Tribunal occasioned a failure of justice since the Chairman took the opinion of this member into consideration and agreed with it. H Mr. Kesaria argued that the absent member was made aware of what arguments had been made in his absence. It is my considered opinion that no failure of justice was occasioned because there was no witness involved and that all that which was required was to know the arguments of both sides. Although the record does not state that the I argument of Mr. Marando was made known to the absent member, there is material on the record to show that the

absent member at least read what that argument was, because even time to read the A cases referred to by counsel was given to both members. It was held in Arobogast Fundi v Masudi Zaid [l980] TLR 125, that the test of determining whether a change of assessors during trial is curable irregularity or not is whether such change occasions a failure of justice to a party in fact. I, with respect agree with this holding of the High B Court. The above case appears to be authority even in the case at hand where there was an irregularity.

Finally I come to the point of appeal which should have been determined by the Appeals Tribunal to the exclusion of all the other matters which were dealt with. It is whether an

extension of time should have been granted. I have heard both arguments C for and against the granting the extension to apply for setting aside the dismissal, and I am of the opinion that the Regional Housing Tribunal should have granted the extension. This is because it was not entirely the fault of the respondent (Mrs. Kermali) that no D application for setting aside the dismissal was made in time. In view of the orders I intend to make at the end of this appeal, I do not wish to say more about the reasons which in my view were sufficient to warrant an extension of time to apply.

Before I conclude this appeal, I wish to state that I was rather perturbed by Mr. E Kesaria's remarks in his submission before the Appeals Tribunal which were in the following words "from the very beginning of the proceedings it is evident that the presiding chairman was biased in favour of the respondent." With due respect to Mr. Kesaria, I can see no evidence to such a serious allegation against a Magistrate. Just F because a Magistrate makes a decision which is against one's interest does not mean he is biased against him. The Court of Appeal of Tanzania had an occasion to remark that allegations of bias against a Judge or Magistrate should not be made lightly and the G Court of Appeal warned against such conduct in future. I cannot do better than sound again the words of the Court of Appeal to those who are minded to make accusations of bias against Judges or Magistrates without providing any evidence to back up their allegations.

Having said that, I will now conclude the appeal. This appeal fails in so far as it seeks H to have the decision of the Appeals Tribunal set aside in respect of its holding that the Regional Housing Tribunal should have granted the respondent an extension of time to apply for the setting aside the dismissal order. The appeal succeeds in respect of the other orders made by the Appeals Tribunal which were not matters under appeal in the I Appeals Tribunal. The same

are set aside. For the avoidance of doubt it is hereby stated that the matter is remitted A back to the Regional Housing Tribunal for that Tribunal to deal with the application to be made by the respondent for setting aside the dismissal order against her main application for an injunction. This may appear a circuitous course but I am afraid there B is no short cut here. Each party is to bear his costs since each side has only been partially successful.

Order accordingly.

C

[zRPz]SASA ENTERPRISES (Z) LIMITED v MOHAMED RAZA HUSSEIN DHARAMSI 1989 TLR 78 (HC)

Court Court of Appeal of Tanzania- Zanzibar
Judge Nyalali CJ, Omar JA and Mfalila Ag JA

17 May, l989 D
Flynote

Contract - Oral loan agreement - Concluded by one of the directors of a company - Loan E money given to the director - Whether company liable to repay the loan.

Company Law- Directors - Powers - One of company directors concludes an oral loan agreement and receives the money -Whether company liable to repay the loan - Section 33(b) Companies Decree of Zanzibar -Relevant articles of the Articles of Association of F the Company considered and construed.

-Headnote

The respondent successfully sued the appellant company in the High Court for breach of contract to repay a loan of shs. one million. The loan contract was concluded G between the respondent and one of the directors of the appellant company. Counsel for the appellant argued that said loan was a personal loan made to the director and not in any way a loan made to the appellant company. It was further argued that the loan did not comply with the requisite procedures for borrowing money by the company. The H court considered the effect of a company's internal requirements and procedures on third party interest.

Held: (i) Section 33(b) of the Companies Decree of Zanzibar empowered the I appellant company to enter into parol contract notwithstanding any internal procedure made by the company to

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NYALALI CJ, OMAR JA AND MFALILA Ag JA

the contrary provided such parol contract was made by a person acting under the A company's authority expressly or impliedly;

(ii) although the provisions of Articles 14 and 15 of the Articles of Association of the Company must be construed as requiring prior agreement between the directors before one of them acts for and on behalf of the company, a third party dealing with B one of the directors is not obliged to ascertain whether such prior agreement existed;

(iii) the appellant company is liable to repay the loan as claimed by the respondent.

Case Information

Appeal dismissed.

Case referred to. C

1. Royal British Bank v Torgand [l856] 6EXB.

El-Maamry, for the Appellant. D

[zJDz]Judgment

Nyalali, C.J., Omar, J.A. and Mfalila, Ag. J.A.: The respondent, namely, Mohamed Raza Hassan Dharamsi, successfully sued the appellant, that is, Sasa Enterprises (Z) Limited in the High Court of Zanzibar at Zanzibar for breach of contract E for repayment of a loan of shs. one million plus interest at Bank rate and with costs. The appellant was aggrieved by the decision of the High Court, hence this appeal to this court. Mr. El-Maamry, learned advocate, appeared for the appellant before us; whereas the respondent who was duly served with notice to appear, did not enter F appearance in his appeal. The hearing of this appeal proceeded in his absence under the provisions of Rule 105(2) of the Tanzania Court of Appeal Rules, l979.

From the proceedings at the trial and in this court, the following primary facts are not in dispute between the parties: The appellant is a company incorporated in l985 under the G Companies Decree of Zanzibar, initially it had four shareholders, that is, Ghalib Abdalla, Halfani Shuweli, Ali Sultani Issa and his wife, that is, Eshe. On the 15th February, 1986, the number of shareholders was reduced by resolution from four to two; and in that way the remaining shareholders remained Ali Sultani Issa, who H appeared as the only defence witness at the trial, and Ghalib Abdalla who did not testify at the trial. Sometime thereafter in l986 the respondent Mohamed Raza Hussein Dharamsi gave the said Ghalib Abdalla a loan of shs. one million repayable in a month's time. The said sum of money has not been repaid as agreed in spite of repeated I demand for

payment. It is also not in dispute that at the material time the said Ghalib Abdalla was A one of the Directors of the appellant company.

From the proceedings in this court and the court below the following matters are in dispute between the parties: It is the respondent's case apparent from the record that the loan of shillings one million was made to the appellant acting through its Director, B that is Ghalib Abdalla. On the other hand, it is the appellant company's case also from the record and the submissions made by Mr. El-Maamry, learned advocate for the appellant, that the said loan of shillings one million was a personal loan made to Ghalib Abdalla, and not in any way a loan made to the appellant company. C

The main issue which arises for consideration and decision in this appeal before us is a narrow one, and it is whether the loan of shillings one million was a personal loan made to Ghalib Abdalla or was a loan made to the appellant company. The learned trial judge considered this point and found as a fact that the loan was not a personal loan D but was a loan made to the company through one of its Directors, that is the said Ghalib Abdalla.

In his memorandum of appeal, elaborated upon by Mr. El-Maamry, the appellant complains against this finding of the court below and submits in effect that the evidence E adduced at the trial was not sufficient to prove on a balance of probabilities that the loan was made to the appellant company.

The evidence adduced by the respondent, who was the complainant at the trial, was given by the respondent himself (P.W.1) and by one Ibrahim Hassan (P.W.2) who is F the brother of P.W.1, and by one Ahmed Sultan Mugheiry (P.W.3). This latter witness is also known as Riami. The evidence of P.W.1 is to the effect that the loan agreement was made in the office of the appellant company for the purpose of financing the G construction activities of the appellant company, and that thereafter the money was conveyed to Ghalib by P.W.2. The evidence of P.W.2 corraborates that of P.W.1 concerning the transmission of the money to the said Ghalib Abdalla who passed it on to P.W.3. The evidence of P.W.3 corroborates that of P.W.2 concerning the delivery of the money. P.W.3 was the Operations Director of the appellant company. He H testified to the effect that the appellant company needed the money because it happened to be in a bad financial position, and the money thus received was used in paying

construction technicians of the company. That, in a nut-shell, is the evidence in support of the respondent's case. I

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The appellant, on the other hand, adduced evidence through one of its Directors, that A is, Ali Sultan Issa (P.W.1) to the effect that the appellant company did not borrow any money from the respondent as the alleged loan did not comply with the procedures required for borrowing money by the company. This procedure entails a resolution by the Board of Directors, a recording of the transaction by the company, and an B endorsement of the company's seal on the documents embodying the loan agreement.

It is apparent that the central issue in this case is whether the said Ghalib Abdalla acted for and on behalf of the appellant company in borrowing the money as testified to by P.W.1, P.W.2 and P.W.3. In resolving the issue, one has to ask one self whether it is C improbable that the said Ghalib Abdalla acted as he is said to have acted, in contravention of the laid down procedures of the company. We see nothing improbable for any human being, including the said Ghalib Abdalla to act contrary to laid down procedures. To say otherwise would mean that it is also improbable for people to D contravene the law.

The Said Abdalla did not testify at the trial although the court made sure that he was available. Since he was an obvious witness for the appellant's case if the appellant's E denials of liability were true, one wonders why the appellant, acting through one of its Directors, that is, P.W.1 elected not to have him give evidence. Under the circumstances of this case, we think that an adverse inference can and should be drawn under the provisions of section 114 of the Evidence Decree of Zanzibar, Cap. 5, which states: F

> The court may presume the existence of any act which it thinks likely to have happened, regard being had to the common cause of natural events, human conduct and public and private business, in their relation to the facts of the particular case. G

We are satisfied that the appellant refrained from having the said Ghalib Abdalla give evidence, whilst he should testify in support of the respondent's claim. We are thus satisfied that the learned Chief Justice was correct in accepting the evidence of P.W.1, H P.W.2 and P.W.3 concerning the conduct of the said Ghalib Abdalla in borrowing the money in question for and on behalf of the appellant company. This conduct is fully covered by the provisions of section 33(b) of the Companies Decree of Zanzibar, Cap. 153, which states: I

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NYALALI CJ, OMAR JA AND MFALILA Ag JA

> 33- (1) Contracts on behalf of a company may be made as follows: A
>
> (a) ...
>
> (b) a contract which if made between private persons would by law be valid although made by parol only, and not reduce into writing, may be made by parol B on behalf of the company by any person acting under its authority, express or implied.
>
> (2) A contract made according to this section shall be effectual in law, and shall bind the C company and its successors and all other parties thereto.

It is obvious from these provisions of section 33 that the appellant company was empowered in law to enter into a parol contract, as it did in the present case, D notwithstanding any internal procedure made by the company to the contrary, provided that such parol contract is made by a person acting under the company's authority expressly or impliedly. The question therefore arises whether the said Ghalib Abdalla was expressly or impliedly authorised by the company to enter into the loan contract E which is the subject of this case.

The learned Chief Justice relied, inter alia, on the provisions of Articles 14 and 15 of the Articles of Association of the appellant company, which state - in Article 14: F

The Directors may, from time to time, at their discretion, borrow and secure the payment of any sum or sums of money for the purposes of the Company.

As to Article 15, it states: G

The Directors may secure repayment of such monies in such manner and upon such terms and conditions in all respects as they think fit. H

On the basis of these provisions, the learned Chief Justice came to the conclusion that the said Ghalib Abdalla, acting as Director of the appellant company, had express authority to enter into the loan contract in question. The learned Chief Justice was furthermore of the view that although the provisions of Articles 14 and 15 must be I construed as requiring prior agreement between the

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Directors before one of them acts for and on behalf of the company, a third party A dealing with one of the Directors is not obliged to ascertain whether that prior agreement existed. As authority for this stand, he cited the case of Royal British Bank v Torgand [l856] 6 EXB. We concur with his findings. We are satisfied that the said Ghalib Abdalla as a Director of the appellant company had express authority contained B in Articles 14 and 15 of the articles of Association, to borrow money for and on behalf of the appellant company.

The final issue for consideration and decision in this case is whether the appellant company is liable to repay the loan as claimed by the respondent. We find no difficulty, C in answering this question by virtue of the provisions of section 33 (1)(b) and of the Companies Decree of Zanzibar above cited. The answer is thus in the affirmative.

It follows therefore that the judgment of the learned Chief Justice cannot be faulted, and we are bound to dismiss this appeal and we do so now with costs. D

Appeal dismissed.

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E

[zRPz]IN THE MATTER OF THE COMPANIES ORDINANCE AND IN THE MATTER OF ISAHERO AGRIVET (T) LIMITED EX PARTE JO' CARLO BALLONZI 1989 TLR 83 (HC)

Court High Court of Tanzania- Dar Es Salaam

Judge Kyando J

19 May 1989 F

Flynote

Company Law - Winding up - Opposition to winding up - English Companies (Winding-up Rules), 1929. G

-Headnote

The petitioner, Jo'Carlo Ballonzi, filed a winding up petition praying that Isahero Agrivet (T) Ltd (the company) be wound up by the High Court. Petition was filed on 5/9/l988 and was on 4/l0/l988 advertised in the 'Daily News'. The petition was then set down for hearing on 14/2/l989. In the meantime, on 3/11/l988 Mr. Marando, H representing the company, appeared before the Deputy Registrar of High Court, and applied orally and ex-parte for extension of time to file an affidavit in opposition to the winding-up. The application was granted and Mr. Marando was given seven days to I file his affidavit in opposition.

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KYANDO J

At the commencement of the hearing on 15/l2/l989, Mr. Ballonzi for the petitioner A raised two points of objection to the presence of Mr. Marando in court on that date and his affidavit in opposition. Mr. Ballonzi contended that Mr. Marando had no right of audience because after the petition had been advertised he or the company gave no B notice to the petitioner of his intention to appear as required by Rule 33 of the Companies (Winding-up) Rules, 1929. Secondly, that the extension of time granted to Mr. Marando on 8/11/l988 by the Registrar had been obtained ex-parte and fraudulently when he (Mr. Ballonzi) and/or his client should have been notified and given an opportunity of being heard in opposition to it. C

Held: (i) By virtue of ss. 285 and 348 of the Companies Ordinance, Cap. 212 it is the English Companies (Winding-up) Rules, 1929, which apply to a petition. A Winding-up petition is required to be presented to the Registrar of the High Court D (Rule 26) and must be advertised "seven clear days before the hearing" (Rule 27);

(ii) rule 33 requiring notice to the petitioner by any person who wishes to appear does not apply to the company. The rule relates only to persons who have been notified of the petition by advertisement; E

(iii) rule 28 provides that every petition shall be served upon the company or otherwise presented at company's registered office. There is nothing to establish that the company was served with the petitioner's petition at any stage since it was filed in court. The petition was therefore not served on the company as the law requires and F the petitioner cannot now be heard to say that the affidavit in opposition is out of time.

(iv) in exercise of powers conferred on courts by section 95 of the Civil Procedure Code, l966 Mr. Marando is permitted to give notice of the filing of affidavit G in opposition to the winding-up in compliance with Rule 35(1) of the Companies (Winding-up) Rules, 1929.

Case Information

Objections overruled

Ballonzi, for the petitioner H

Marando, for the respondent

[zJDz]Judgment

Kyando, J.: Jo'Carlo Ballonzi, the petitioner, has filed a winding up petition in which he prays that Isahero Agrivet (T) Ltd (the company) be wound up by this court. The I petition was filed on

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KYANDO J

5/9/88 and on 4/l0/88 it was advertised in the 'Daily News' of that date. It was then set A down for hearing on 6/l0/88. On that date it was adjourned to 15/10/88 for mention with a view to fixing another hearing date. On that date, i.e. 15/l0/88, hearing was set down for 14/2/89. In the meantime, on 3/11/88 Mr. Marando, representing the company, appeared before Mr. Mrema, the Deputy Registrar of the High Court, and B applied orally and ex-parte for extention of time to file an affidavit in opposition to the winding up. The Deputy Registrar granted the application and allowed Mr. Marando seven days from the 3rd of November l988 to file his affidavit in opposition. He (Mr. Marando) filed the affidavit on 8/11/88. C

On 14/2/89 the hearing of the petition was adjourned to the next day, i.e. 15/2/89. At the commencement of the hearing on 15/2/89, Mr. Ballonzi for the petitioner raised two points of objections to the presence of Mr. Marando in Court on that date and his affidavit in opposition. He (Mr. Ballonzi) contended that in the first place Mr. Marando D had no right of audience because after the petition had been advertised he or the company gave no notice to the petitioner of his intention to appear as required by Rule 33 of the Companies (Winding-up) Rules l929. Secondly he contended that the extension of time granted to Mr. Marando on 8/11/88 by the Deputy Registrar had E been obtained ex-parte and fraudulently when he (Mr. Ballonzi) and/or his client, the petitioner, should have been notified and given an opportunity of being heard in opposition to it. He referred to Rule 8 of the Winding-up Rules which provides that every application, other than a petition, under the Rules must be made by either motion, F if made in court, or Summons, if in Chambers, and that notice of the application must be served on the other party. Mr. Ballonzi contended that the application for extention of time by Mr. Marando was not made in accordance with Rule 8. He submitted therefore that Mr. Marando's affidavit in opposition was time-barred. He said further G that as there is no proper order granting extension of time to date, the affidavit in opposition is not properly before the court and should be dismissed. He contended that once that is done, the petition will stand unopposed and he prayed therefore that it be granted as prayed. H

In reply Mr. Marando argued that his client, the company, was under no obligation under Rule 33 (supra) to give notice of intention to appear because, he contended, notice under that rule is required from creditors, contributors, etc, but not from the company itself which is the subject of a winding-up petition. In any case, Mr. Marando I contended, the obligation, if any on the part of the company

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KYANDO J

to serve notice would only have arisen if the petitioner had served the company with the A petition as required by Rule 28. He argued that the petition was not served on the company as

required and Mr. Ballonzi cannot now be heard to say that the petitioner has not been served with notices to appear from it. B

Concerning the extension of time granted by the Deputy Registrar on 3/11/88 Mr. Marando argued that it is common practice to ask for extension of time during mention of cases. He said the matter was brought before the Deputy Registrar on 3/11/88 and he prayed on that date, orally, that he be given more time to file the affidavit in C opposition. He said this was granted and he sees nothing irregular about it. He submitted that the objections by Mr. Ballonzi were baseless and prayed that he be permitted to be heard in opposition to the petition.

It is not in dispute between the parties to this matter that by virtue of ss.285 and 348 of D the Companies Ordinance, Cap 212 it is the English Companies (Winding-up) Rules, l929, which apply to a petition such as the present one. Under those rules a winding-up petition is required to be presented to the Registrar of the High Court (Rule 26) and must be advertised "seven clear days before the hearing" (Rule 27). Rule 28 provides E that every petition shall be served upon the company, unless presented by it, at its registered office etc. Then under Rule 33, every person who intends to appear on the hearing of the petition must serve on, or send by post to, the petitioner or his advocate or agent at the address stated in the advertisement of the petition notice of his intention F to so appear. A person who has failed to comply with this requirement "shall not, without the special leave of the court, be allowed to appear on the hearing of the petition". In the instant matter, Mr. Ballonzi argues that the company is caught by these provisions of the Rules because it has failed to give a notice. Rule 29 provides that G every petition for the winding-up of a company by the court shall be verified by an affidavit referring thereto. Rule 35(1) provides that affidavits in opposition to a petition, such as the one filed by Mr. Marando herein, "shall be filed within seven days of the date on which the affidavit verifying the petition is filed". In the present matter the H affidavit verifying the petition was filed on 5/9/88, i.e. on the date on which the petition was filed. The affidavit in opposition to the Winding-up was filed on 8/11/88 as already shown. Mr. Ballonzi submits that it was filed outside the prescribed period of time and should be disregarded. I

On the requirement of notice to the petitioner by any person

who wishes to appear under Rule 33 I have no doubt in my mind, and I agree with Mr. A Marando that it does not apply to the company. The rule relates to persons who have been notified of the petition by advertisement. It states:

> 33 Every person who intends to appear on the hearing of a petition shall serve on, or send by B post to, the petitioner, or his advocate or agent, ... at the address stated in the advertisement of the petition notice of his intention. (underlining added). C

The notice follows on an advertisement of the petition. The company, on the other hand, is not served or notified by advertisement. Under Rule 28 it is notified by (or served with) the petition itself and upon being served with the petition what it is required to do, if it wishes, is to file an affidavit in opposition under Rule 35, and not to D give a notice as Mr. Ballonzi would wish this court to hold. There are two separate procedures therefore in relation to the company and

other persons when winding up petition is filed. For the company, it is served with the petition and if it wishes to oppose it must file an affidavit in opposition. For other persons, they are notified by E advertisement and if they wish to appear on the date of hearing of the petition they have to give notices to the petitioner indicating their intentions. It does not sound logical to me that for a company it should be served both by advertisement and by service of the F petition, or that it should give notice and also file affidavits in opposition. It is upon filing of an affidavit in opposition that notice of its filing is given to the petitioner I hold therefore, as I have indicated already, that the requirement to give notice under Rule 33 does not apply to the company. I do therefore overrule Mr. Ballonzi's objection to the company's appearance in this matter. G

Concerning the filing of the affidavit in opposition out of time, Mr. Marando complains, as shown, that the company was not served with the petition as required by Rule 28 (Supra). Mr. Ballonzi in reply has contended that the company must have become H aware of the filing of the petition because at some stage it took steps towards opposing the petition. He contended that in any case he had seen a copy of the petition signed by the company indicating that it had been served. With respect, there is nothing before me to establish that the company was served with the petitioner's petition at any stage since it was filed here. There is nothing in the Court file to I

show this. Becoming aware of the petition by the company as Mr. Ballonzi contends is A not service on it. Mr. Ballonzi should have ascertained it in fact, and shown to the court positively, that service had been effected, and if so when before he launched his attack on the affidavit in opposition. I hold that the petition was not served on the B company as the law requires. For this reason Mr. Ballonzi cannot now be heard to say that the affidavit in opposition is out of time. The rather irregular procedure employed in extending the time for filing the affidavit in opposition was necessitated by Mr. Ballonzi's failure to serve the petition on the company. I think that irregularity is C excusable in the circumstances and I hold that the affidavit in opposition was filed in time, as extended by the Deputy Registrar.

There is one point though in relation to this affidavit in opposition to the petition. Rule 35(1) of the Companies (Winding-up) Rules requires that once the affidavit in D opposition has been filed, notice of the filing of the affidavit must be given, on the date it is filed, to the petitioner or his advocate or agent. In the instant matter, no such notice appears to have been given by Mr. Marando or the Company to Mr. Ballonzi or the petitioner. This is rather contrary to the rules. However while failure to give notice E under Rule 33 is attendable by a person being barred from appearing at the hearing of the petition, Rule 35(1) does not say what results from failure to give notice upon filing an affidavit in opposition. I think it will all depend on the circumstances of each case. In this instant matter, under powers provided for in s.95 of the Civil Procedure Code, F l966, I will permit Mr. Marando or the Company to give notice as from today of the filing of the affidavit in opposition to the petition. He is given three days from today within which to file the notice. This notice will, of course, be sort of formality to Mr. G Ballonzi

because he is already aware that the affidavit in opposition has been filed. It will, however, give him an opportunity to replying to it under Rule 35(2). He is to file the affidavit, if any, in reply within the days from the date when notice of filing of an affidavit in opposition will be received by the petitioner or Mr. Ballonzi. Then the H petition is to be set down by the Registrar for hearing.

In the final result then, the objections raise by Mr. Ballonzi to the appearance of the company and to the affidavit in opposition to the Winding-up petition are overruled. I

Objections overruled.

1989 TLR p89

A

[zRPz]IDDI IBRAHIM v AMRI SHABANI 1989 TLR 89 (HC)

Court High Court of Tanzania- Dodoma

Judge Samatta J

23 May, 1989

Flynote

Civil Practice and Procedure - Right to sue - Whether a female who has attained the age B of majority can sue or be sued in her own name.

-Headnote

Gole Shukia inherited a farm of her deceased father. A brother of the deceased who was an administrator of the deceased estate was in occupation of the farm. A male near C relative of Gole instituted a suit for recovery of possession of the farm on behalf of Gole.

One of the issues considered and decided by the court was on the locus standi of a female who has attained majority. D

Held: The general rule of law is that any female who has attained, in terms of s.2 of the Age of Majority Ordinance, Cap.431, full age has the right to institute proceedings in a court of law in her own name or individual capacity unassisted. E

Case Information

Appeal allowed.

[zJDz]Judgment

Samatta, J.: This is an appeal from a decision of the District Court of Iramba affirming the decision of the Primary Court of Nduguti whereby a claim by the respondent for recovery of possession of a six-acre farm was allowed. F

I have reached the settled conclusion, having given the matter anxious and, I hope, careful consideration, that the decisions of the two courts below cannot be allowed to stand. The respondent's case was simply this. Some years prior to 1979 his elder G brother, Chandewa Kititi, permitted the appellant to use his (Chandewa's) six-acre farm for cultivation purposes. In l979, following the death of Chandewa, he became or was appointed administrator of the deceased's estate. Eventually, the six-acre farm was inherited by the deceased's daughter known

as Gole Shukia. When called upon to give H possession of the farm to the woman, the appellant refused to do so, asserting that the farm was his property. The respondent reacted to that refusal by instituting the proceedings which have given rise to the appeal now before me. The appellant's answer to the suit was that the six-acre farm was his property, having developed the land I himself.

1989 TLR p90

SAMATTA J

The appellant has invited me to determine the appeal on its merits, but I am clearly of A opinion that it is not possible in law to do so. Why am I of that opinion? That I will tell. The evidence adduced by the respondent clearly reveals that when the suit was instituted in the Primary Court the farm in question had already been inherited by Gole Shukia, B who in l983 was, according to the record of the case, aged 30. It must be correct to say that, as far as the farm is concerned, the office of administrator, which the respondent assumed on the death of his elder brother, came to an end when the estate in the farm descended to Gole Shukia. If Gole wished to acquire possession of the farm, then she C herself should have instituted the proceedings. His office of administrator of the deceased's estate having come to an end, the respondent ceased to have locus standi in the matter. It would appear that the respondent instituted the proceedings in his own name because he entertained the view that, being a female, Gole lacked legal capacity to D institute proceedings before a court of law. Nothing is further from the truth than that notion. Whatever the position might have been in the past, now the general rule of law (and it is obvious justice) is that any female who has attained, in terms of s. 2 of the Age E of Majority Ordinance (Chapter 431), full age has the right to institute proceedings in a court of law in her own name or individual capacity unassisted. The notion that a woman can institute legal proceedings only through her father or other male relative is a notion of the past, which our law now rejects as being entirely erroneous. It is an F incontrovertible proposition of law that a woman does not need a guardian to assist her in institution or prosecuting a suit in a court of law. Once she reaches the age of majority, a female, like a male, ceases to be a minor and can sue or be sued in her own name. The law treats her as having full legal capacity. A woman in this country can now stand up and loudly say: G

I am a major and have the undeniable right to personally look after my legal interests. I need no guardian.

And, lawyers would nod to signify their assent. H

The appeal is allowed, the decision of both courts below are set aside. The respondent (Amri Shabani) will pay the appellant's costs in the two courts and this court. For the I avoidance of doubt, it must be stated that Gole Shukia is at liberty in law to institute civil

1989 TLR p91

proceedings against the appellant for the recovery of possession of the six-acre farm. A

Appeal allowed.

1989 TLR p91

B

[zRPz]GODWIN S. KIGALLA AND 88 OTHERS v NATIONAL HOUSING CORPORATION 1989 TLR 91 (HC)

Court High Court of Tanzania- Dodoma
Judge Samatta J

26 May, l989 C
Flynote
Land Law -Rent Restriction - Whether the Regional Housing Tribunal has jurisdiction to D entertain an application by the National Housing Corporation for increase of rent - Whether National Housing Corporation exempted from the provisions of the Rent Restriction Act, 1984 - Section 2(1) Rent Restriction Act, 1984. E
-Headnote
The respondent is a parastatal organization. It owns housing units which it rents to the applicants, none of whom is employed by it. Before the Regional Housing Tribunal had raised it to shs.510/= the monthly rent for each unit was shs. 90/=. In this application Mr. Godwin S. Kigalla moves, on behalf of himself and his co-applicants, who are 88 in F number for an order of Certiorari to bring up and quash the decision of the Regional Housing Tribunal of Dodoma dated 16/6/l987 allowing an application filed before it by the respondent corporation and raising the monthly standard rent for each of the housing units which the applicants occupy from shs. 90/= to shs 510/=. Citing s. 2(1) of the Rent G Restriction Act l984 and paragraph 4(b) of Staff Circular No. 2 of l973 Mr. Kigalla contended that, since the housing units in question are the property of a parastatal organization the Regional Housing Tribunal had no jurisdiction to entertain the application brought before it by the respondent. H
Held: (i) The words in s. 2(1) of the Rent Restriction Act must be given their ordinary meaning. When construed, the subsection cannot be said to exempt dwellings (or I commercial) premises which are the property of the respondent corporation and rented to persons
1989 TLR p92
SAMATTA J
employed by public institutions (including Government) other than respondent A corporation itself;

(ii) if a house or flat belonging to the respondent corporation is rented by a person employed by the government a local authority or some other parastatal organization the exemption created by the subsection does not cover such premises. B However if such premises are rented by an employee of the respondent then the exemption would apply;

(iii) the Minister for the time being responsible for housing affairs may of course, by invoking his powers under sec. 2(1)(b) of the Rent Restriction Act, exempt the C premises but he has in his wisdom not done so. It follows therefore that the Regional Housing Tribunal was perfectly entitled in law to entertain the respondent's application. It had jurisdiction to do so.
Case Information

Application dismissed. D

[zJDz]Judgment

Samatta, J.: In this application Mr. Godwin S. Kigalla moves, on behalf of himself and his co-applicants, who are 88 in number, for an order of certiorari to bring up and quash a decision of the Regional Housing Tribunal of Dodoma dated 16th June, 1987, E allowing an application filed before it by the respondent corporation and raising the monthly standard rent for each of the housing units which the applicants occupy from shs. 90/= to shs. 510/=. The application raises an important question as to the meaning F and effect of s. 2(1) of the Rent Restriction Act, 1984 (hereinafter referred to as "the Act"). Although he is not a lawyer, Mr. Kigalla has argued the application fairly ably and, if I may hasten to add, with that degree of confidence which lawyers usually display on such occasions.

The facts which are material to the determination of the application may, I think, be G stated as shortly as is consistent with intelligibility. The respondent is a parastatal organisation. It owns the housing units in question which it rents to the applicants, none of whom is employed by it. Before the Regional Housing Tribunal had raised it to H shs.510/=, the monthly rent for each unit used to be shs.90/=. Basing himself on s. 2(1) of the Act and paragraph 4(b) of the Staff Circular No. 2 of 1973, issued by the Central Establishment Division of the President's Office, Mr. Kigalla contended that, since the housing units in question are the property of a parastatal organisation, the Regional I Housing Tribunal had no jurisdiction to entertain the application brought before it by the respondent.

1989 TLR p93

SAMATTA J

According to Mr. Kigalla, s. 2(1)(a) of the Act exempts all residential and commercial A premises owned by the respondent for renting from the application of the provisions of the Act. Notwithstanding the forceful way Mr. Kigalla presented his argument, I am unable to accede to it. Section 2(1) of the Act, partly relied upon by Mr. Kigalla in his contention, reads as follows: B

(1) This Act shall apply to all dwelling houses and commercial premises, furnished or unfurnished, situate or in course of erection or hereafter to be erected in any rent restriction area in Tanzania Mainland, other than - C

(a) premises which are the property of the Government, a parastatal organisation or of a local authority, where such premises are used by or are for use by employees of the Government, the parastatal organisation or the local authority, D and

(b) any premises, or class of premises, in Mainland Tanzania, which the Minister may with approval of the National Assembly signified by a resolution, by order published in the Gazette, exempt from all or any of the provisions of this Act. E

None of the applicants has, in this application disclosed the identity of his employer, but for the present purposes it will be assumed that they are employed by the Government, a F parastatal organization (other than the respondent corporation) or a local authority. Paragraph 4 of the Staff Circular No. 2 of 1973 reads as follows:

4. These regulations in the matter of rents, have now been reviewed and it has been G decided to introduce the following changes, with effect from the 1st March, 1973, which will

apply to "public sector housing". For this purpose public sector housing means and will now include accommodation allocated to officers by:

(a) Government; H
(b) The National Housing Corporation;
(c) The Registrar of Buildings;
(b) Other Parastatal Organisations. I

1989 TLR p94
SAMATTA J

Before proceeding further, I desire to express the hope that I will be forgiven for stating A the obvious, namely, that Staff Circular issued by the Central Establishment Division govern only the relationship between the Government and its employees. The relationships between parastatal orgnisations and local authorities and their respective B employees are not governed by these circulars; they are governed by circulars issued by other relevant bodies. Having said that, I must now revert to the question whether the Regional Housing Tribunal was right in law to hold, as it seems to have done, that it has jurisdiction to entertain applications for increase of rent brought by the respondent C corporation in respect of dwelling premisses owned by the corporation and rented by public servants employed by the Government, local authorities or parastatal organisation other than the respondent corporation. It is my opinion that the words in s. 2(1) of the Act must be given their ordinary meaning. When so construed, the subsection, in my D considered opinion, cannot be said to exempt dwelling (or commercial) premises which are the property of the respondent corporation and rented to persons employed by the public institutions (including the Government) other than the respondent corporation itself. As I read the subsection, it seems to me that if a house or flat belonging to the E respondent corporation is rented by a person employed by the government, a local authority or some other parastatal organisation, the exemption created by the subsection does not cover such premises. It is arguable, however, that if such premises are rented by an employee of the respondent corporation, then the exemption would apply. The F conclusion that there is no merit in Mr. Kigalla's argument is fortified, as far as employees of the Government are concerned, by the provisions of paragraph 10 of Staff Circular No. 21 of 1973, which reads:

10. Although officers occupying "public sector housing" will now pay rents based on salary, G the National Hosing Corporation, the Registrar of Buildings or other Parastatal Organisations, will continue to be entitled to receive the full standard rent for their premises. Therefore, while accounting officers will recover rents on the basis of H paragraph 5 above, the full assessed standard rent should be remitted by accounting officers to the National Housing Corporation, the Registrar of Buildings or other Parastatal Organisations.

In cases where these accounts are in excess of the rents actually recovered from I officers, accounting officers

1989 TLR p95
SAMATTA J

should report the shortfall to the Principal Secretary, Ministry of Communications and A Works.

As amended by Amendment Slip "A", dated August 1, 1974, paragraph 5, referred to above, reads as follows: B

5. All officers occupying "public sector housing" will be required to pay rent according to the following percentages of basic salary, irrespective of whether the accommodation is furnished or unfurnished: C

	Category	Rate of Basic Salary	Rate of Rent
A	From minimum wage up to shs.863/= per month		7.5% of Salary.
B	Shs.864/= permonth to shs.1,725/= per month		10% of Salary. D
C	Shs.1,726/= per month and over		12.5% of Salary.

In cases where officers or overseas terms are receiving, in addition to basic salary, such E other payment as special allowance, expatriation allowance, pay addition etc, these payments should not be taken into account for the purposes of house rent.

In my opinion, though they are, in terms of paragraph 4 of Staff Circular No. 2 of 1973, F public sector housing, the dwelling premises which the applicants occupy and which were the subject matter of the proceedings conducted before the Regional Housing Tribunal, are not exempted from the application of the provisions of the Act. The Minister for the time being responsible for housing affairs may, of course, by invoking his G powers under s. 2(1)(b) of the Act, exempt the premises, but he has in his wisdom not done so. It follows, therefore, that the Regional Housing Tribunal was perfectly entitled in law to entertain the respondent's application. It had jurisdiction to do so. Whether or H not it arrived at a just decision is an entirely different question which cannot be answered in the instance proceedings.

I Application dismissed .

1989 TLR p96

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[zRPz]JUMA NG'HOSHA v AMOS MUTANDA 1989 TLR 96 (HC)

Court High Court of Tanzania- Mwanza

Judge Sekule J

5 June, l989

Flynote

Family Law - Inheritance - Widow inheritance - Whether lawful - GN 279/1963 para 64. B

Family Law - Damages - Adultery without enticement - Whether damages recoverable.

-Headnote

The respondent in this appeal successfully sued the appellant in Igalukiro Primary Court C for five head of cattle as compensation for adultery. The appellant's appeal to the District Court was dismissed. Hence this appeal.

The facts were that in November 1986, the respondent's grandfather died, leaving D behind a widow and three children. After the funeral and during mourning, members of the deceased's family asked the widow to remain and be inherited by one of the members of her deceased

husband. She consented and chose the respondent out of the six members of the family brought before her. He took the widow to his home where E they stayed as man and wife. Sometimes towards the end of March l987, the widow asked leave of her husband to visit her children living with the respondent's father. Permission was granted, and she was to return on the same day. She never returned. After looking for her for two days, the respondent found her living with the appellant. He F reported the matter to a Ten Cell leader before whom the appellant, in writing, agreed to refund the respondent's bride-price, a promise which was not honoured. The respondent sued in court.

Held: (i) When a widow is duly inherited, according to GN 279 of 1963 para 64, she G becomes a lawful wife of the one who has inherited her;

(ii) a man has a duty under para 129 of GN 279 of 1963, to carry out adequate inquiry to satisfy himself and ascertain the marital status of a woman before taking her to H his home as a wife;

(iii) Adultery when proved entitles a claimant to damages.

Case Information

Order accordingly.

No case(s) referred to. I

1989 TLR p97

SEKULE J

[zJDz]Judgment

Sekule, J.: The respondent in this appeal successfully sued the appellant in the Igalukilo A Primary Court for five head of cattle as compensation for adultery. The appellant was aggrieved by this decision he appealed to the District Court of Magu District at Magu. Here too he was not successful. He has now preferred an appeal to this Court. B

The case for the respondent in the trial court was that sometime in November, l986, his grandfather died. He left behind a widow and three children.

After the funeral and before the mourning period had ended, members of the deceased's family asked the widow whether she was willing to be inherited as a wife by another C member of her deceased husband's family, and that she consented. Thereafter six men belonging to her late husband's family were brought before her and she chose the respondent as her new husband.

This exercise was witnessed by other people including the widow's own father. The D family of the deceased also settled with the widow's father the issue of a balance of brideprice that the deceased had left unpaid. The respondent then took the widow as his wife to his home where they stayed as a man and wife.

The respondent further contended at the trial that, sometime towards the end of March E 1987, his wife (the widow) told him that she wanted to visit her children. It would appear these children were living with the respondent's father. He allowed her to go and she went. She was expected to go and return on the same day. She never returned. After two days the respondent started looking for her. He found her living with the F appellant at his home. The respondent then reported the matter to a ten cell leader. It was his contention that at the ten cell leader, the appellant agreed in writing to refund the respondent's bride price. This promise was however

not honoured by the appellant as a result the respondent had no alternative but to take the matter to court. The ten cell G leader testified as P.W.3 and produced the agreement regarding the return of bride price by the appellant to the respondent which both had signed before him. Unfortunately I have not been able to see this document in the records supplied. The father of the widow testified as P.W.2. He firmly supported the respondent's evidence regarding his H contention that he inherited the widow as his wife with her consent. This is what he stated:

Katika wadaiwa hawa wawili, namfahamu mdai Amos Mutanda ambaye ni mkwilima wangu I na mdaiwa simfahamu

kabisa na wala sina uhusiano wowote naye. Nakumbuka Mkwilima wangu wa kwanza A aliyekuwa amemuoa binti wangu Sumai aitwaye Masome Nyenge alifariki mnamo tarehe Novemba, 1986 na kumkabidhi mjane binti yangu. Baada ya matanga mdai ndiye alichaguliwa na binti wangu kuwa mumewe wa urithi. Hivyo mimi nafahamu mume wa binti ni B mdai. Marehemu mkwilima wangu wa kwanza alipofariki alikuwa na deni la mahari - ng'ombe wanne na hivyo binti wangu aliporithiwa na mdai aliahidi kunilipa baki ya mahari mwezi huu - Mei 1987. C

The appellant contended in his defence that on the 29th March 1987 he met the respondent's wife at a market. He approached her and told her that he was in love with her. She agreed and he took her to his home. He further claimed that before that he had asked her whether she was a married woman and she replied in the negative. She D however told him that her first husband was dead and that she was living with her relatives. He did not however ask her whether she had formally parted with her deceased husband's family. At the hearing of this appeal, the appellant and the respondents appeared in person. E

In addition to what he stated in his memorandum of appeal, the appellant contended that the woman in question was not inherited as a wife by the respondent.

I have carefully considered the evidence on record, and I am of the opinion that there F was ample evidence to the effect that the widow was inherited as a wife by the respondent upon the death of her husband. And this was done with her consent. There could not be better evidence in my view on this point than that of the widow's own father, P.W.2. P.W.2's evidence to the effect that his daughter agreed to be inherited as G a wife by relatives of her deceased husband and that she on her own accord chose the respondent as her new husband appeared to have been given in a firm and straight forward manner. And further P.W.2 could not have lied against his own daughter. Like the trial court, I am also of the view that the evidence of this witness was nothing but the truth. H

As a matter of fact, it would appear that the woman's denial to have been inherited as a wife by the respondent was half hearted. For instance she agreed in cross examination that she was visiting the home of the respondent and that it was the respondent who was paying her development tax after the death of her husband. She further stated that after I the death of her husband, she was not formally

SEKULE J

divorced, meaning I suppose that she had not formally parted with her deceased A husband's family. And that in these circumstances therefore she was committing adultery with the appellant.

It is obvious from this account in my view that the widow was simply trying to deny a fact that she knew was the truth or the correct position. Her evidence particularly in B cross examination essentially supported the respondent's testimony to the effect that he had inherited her as a wife. For example, how come did the respondent assume the responsibility of paying her development tax after the death of her husband if he had not inherited her as his wife. C

On the evidence, I am satisfied in my mind that the widow was duly inherited as a wife by the respondent with her consent. And according to paragraph 64 of the Customary Law Declaration Order, GN 279 of 1963 and as rightly pointed out by the trial court, after the widow was inherited with her consent she became the lawful wife of the D respondent. Paragraph 64 reads:

Kama mjane anakubali kuishi kama mke wa mmoja wa ndugu wa marehemu na shauri likakubaliwa na baraza la ukoo, basi anakuwa mke halali wa ndugu yule. E

Further, from the evidence on record, I am of the settled opinion that the appellant was rightly found by the two lower courts to be liable for adultery in this case. According to the appellant's own testimony the widow told him that her husband was dead. And that F he did not however bother to ask her whether or not she had formally parted with her deceased husband's family. In my view the appellant had a duty to carry out adequate inquiry to ascertain and to satisfy himself that the widow was indeed a free woman before taking her to his home as his wife. Paragraph 129 of the Customary Law G Declaration Order, GN 279 is relevant in this connection. Paragraph 129 reads:

Ni wajibu wa mwanamume kupata uhakika kwamba mwanamke anayetembea naye au H anayemwoa hana mume. Usemi wowote wa mwanamke hata kama akiutoa mbele ya mashahidi hauwezi kuwa ngao kama mwanamume akishitakiwa ugoni.

It is thus evident from this paragraph that a man has considerable burden to discharge I before deciding to have an affair or getting

married to a woman whose marital status he does not know before hand. A

In this case and going by the appellant's evidence at the trial, the widow's statement to him when they met to the effect that her husband was dead should have put him on B notice for him to make the necessary inquiries to ascertain her true marital status. He does not seem to have done so. He was indifferent.

In these circumstances therefore he was correctly found to be liable for adultery.

I am thus satisfied that the appellant's appeal on the issue of adultery is devoid of merits, C and it is hereby dismissed.

On the issue of quantum of compensation/damages; the respondent claimed five head of cattle and he was so granted by the lower courts. On my part and after considering the circumstances of the case, particularly the fact that the appellant does not appear to have D enticed or taken

the widow right from her new matrimonial home but that he met her at a market and that there was no evidence adduced to challenge the appellant's claim in this regard, I am of the view that two (2) head of cattle as damages for adultery would meet the ends of justice in this case.
I would and do hereby therefore set aside the trial courts order of compensation and E substitute therefor an order to the effect that the appellant pays the respondent, two (2) head of cattle as compensation/damages for adultery. It is so ordered.
To this limited extent the appeal succeeds. Otherwise it is dismissed. Each party to bear F his own costs for this appeal.
Order accordingly.
1989 TLR p100
G
[zRPz]REPUBLIC v KALISTO MAKUMBULI 1989 TLR 100 (HC)

Court High Court of Tanzania- Mtwara
Judge Maina J

14 June, 1989 H
Flynote
Criminal Practice and Procedure - Sentencing - Power to impose sentence less than the minimum prescribed - Valid reasons for imposing a lesser sentence - Disqualification I from holding or obtaining a driving licence.
1989 TLR p101
MAINA J
-Headnote
In revisional proceedings before the High Court the trial judge found that the subordinate A court had imposed a lesser sentence than the minimum prescribed by law. The judge called upon the accused to show cause why the sentence should not be enhanced and why he should not be disqualified from holding or obtaining a driving licence. B
The judge enhanced the sentence but allowed a lesser sentence than the minimum prescribed and disqualified the accused from holding or obtaining a driving licence.
Held: (i) There were special reasons for the court to impose a sentence less than the C minimum fine. The minimum sentence prescribed in section 63(1)(b) of the Road Traffic Act for an offence of causing injuries through reckless driving contrary to section 42 is a fine of ten thousand shillings. The sentence of fine of five hundred shillings was manifestly D lenient and should be enhanced to five thousand shillings. A person who wishes not to be disqualified from driving must advance reasons which are special to the offence. The reasons given by the accused were special to the offender and not the offence. Therefore, the accused is disqualified from holding or obtaining a driving licence for a period of three years and his learner's driving licence cancelled. E
Case Information

Order accordingly.
Hyera - for the Republic. F
[zJDz]Judgment
Maina, J.: The accused/respondent, was convicted on his own plea of guilty of four counts under the Road Traffic Act 1973. The fourth count was on causing injury through reckless driving for which he was sentenced to a fine of shs.500/= or two months G imprisonment in default.
The record of the case was called for inspection because it appeared that the sentence for the offence in the fourth count was illegal. Furthermore, there was no order disqualifying the accusedfrom driving or obtaining a driving licence. The accused has H been called upon to show cause why the sentence should not be enhanced and also why he should not be disqualified from holding or obtaining a driving licence.
The facts which the accused admitted showed that he drove a motorcycle without displaying learner plates and that he drove so recklessly that he knocked own a I pedestrian who sustained injuries.
1989 TLR p102
MAINA J
When called upon by this court to say why the sentence should not be enhanced, the A accused said that he is a first offender, he had several dependants and that he also sustained serious injuries in his attempt to avoid the collision. The pedestrian sustained minor injury which was a sprain on the leg and on the shoulder. B
In the circumstance, these were special reasons which are relevant for the purpose of imposing a sentence less than the minimum prescribed. The minimum sentence prescribed in section 63(1)(b) of the Road Traffic Act for an offence of causing injuries through reckless driving contrary to section 42 is a fine of ten thousand shillings. In the C circumstances of this case, I have held that the reasons advanced amount to special reasons and the court finds it fit to impose a sentence less than the minimum fine. However, the sentence of fine shs. five hundred imposed by the District Court was D manifestly lenient. The sentence is enhanced to fine shs. 5,000/= or one year imprisonment in default. Since the accused has paid the fine of shs.500/= imposed by the District Court, he should pay shs. 4,500/=.
As regards disqualification from driving, the accused said that he depends on driving to E be able to perform his duties as an auditor. With respect these are reasons special to the offender and not to the offence. A person who wishes not to be disqualified from driving must advance reasons which are special to the offence. In other words, the court can make an order not to disqualify an offender from driving where the reasons advanced are special to the offence. The accused has not given such reasons. F
It is hereby ordered that the accused be,and is hereby, disqualified from holding or obtaining a driving licence for a period of three (3) years effective from 18 January 1989 the date he was convicted. His learner's driving licence is hereby canceled. G
Order accordingly.
1989 TLR p103
A

[zRPz]KWIGA MASA v SAMWELI MTUBATWA 1989 TLR 103 (HC)

Court High Court of Tanzania- Dodoma
Judge Samatta J

15 June, 1989
Flynote
Evidence - Objection proceedings - Onus of proof- On whom it lies - Rule 70 of Magistrates B Courts (Civil Procedure in Primary Courts) Rules 1964 (GN 310) - S.72 (3) of Magistrates' Courts Act 1984.
Evidence - Concession - Failure of the appellant to cross-examine the judgment-debtor - Whether amounts to concession. C
-Headnote
A dispute arose between the parties over the attachment of the objector's several head of cattle in execution of a court judgment against one Mpujila Kusaga. The matter went to Urban Primary Court of Mpwapwa for purposes of legal settlement. The appellant D got judgment which decreed him to recover 8 head of cattle, 7 goats, shs. 3,550/= and costs from the defendant and he also obtained a warrant of attachment which instructed and authorised the District Commissioner to attach the judgment debtor's ten head of cattle from one Samueli Mtubatwa's cowshed. Samuel executed the warrant and handed E over the animals to the appellant in the presence of the Acting Ward Secretary and a member of militia. The respondent was aggrieved by this action hence this appeal.
Held: (i) The Primary Court was required to determine the issue raised in the objection F proceedings in accordance with Rule 70 of the Magistrate's Courts (Civil Procedure in Primary Courts) Rules 1964 (GN 310 of 1964);

(ii) he who seeks a remedy must prove the grounds thereof, in which case it is G the duty of objector to adduce evidence to show that at the date of attachment he had some interest in the property attached;

(iii) the failure on the part of the appellant to cross-examine the judgment-debtor on his assertion that the ten head of cattle did not belong to him cannot upon the evidence on record be regarded as amounting to concession by the appellant that the H assertion was true;

(iv) that the respondent failed to discharge the onus placed on him in this case.

Case Information
Appeal allowed. I
1989 TLR p104
SAMATTA J
Cases referred to. A

1. Lukasi Paskali v Mgwabi Mkaka, (Dodoma Registry) (PC) Civil Appeal No. 130 of 1987 (unreported).

OBITER:If a litigant who is not familiar with the intricacies of court procedure appears B before him, a magistrate should explain to him, briefly and in simple language, the objects of cross-examination.

[zJDz]Judgment

Samatta, J.: This appeal is about ten head of cattle. It raises this question: Is the C District Court of Mpwapwa right in refusing to share the opinion of the Urban Primary Court of Mpwapwa that the ten beasts were rightly attached by the appellant, Kwiga Masa, from the kraal of the respondent's brother, Lazaro Mtubatwa?

The legal battle between the parties over the head of cattle commenced in the Primary D Court nearly two years ago. On May 18, 1987, the appellant obtained in that court a judgment against one Mpujila Kusaga. The judgment, inter alia, declared that he was entitled to recover from the defendant 8 head of cattle, 7 goats, shs.3,550/= and the costs of the suit. Later, he successfully applied for a warrant of attachment. The warrant E authorised and directed the District Commissioner to attach the judgment-debtor's ten head of cattle from Samweli Mtubatwa's cowshed. Armed with this document, the Acting Ward Secretary, in the company of the appellant and a member of the People's Militia, among others, proceeded to Samweli Mtubatwa's cowshed. There, in the F presence of the owner of the kraal and the respondent, among others, he executed the warrant and handed over the animals to the appellant. The respondent was "aggrieved" by that step. He summoned the law to his aid by commencing objection proceedings in G the Primary Court. The burden of his case was that the attached ten head of cattle were his property and not those of Mpujila Kusaga, the judgment-debtor.

He called several witnesses in support of that case. He asserted, among other things, that he had kept the beasts at his brother's kraal because, as a result of the implementation of H the HADO project, he was not allowed to keep them at his kraal. He gave the number of cattle he kept at his brother's kraal as being 6 bulls and 18 cows. His brother's evidence on this point, however, differed materially. The witness said the beasts were 12 in number - 2 bulls and 10 cows. Mpujila Kusaga, who gave evidence I for the respondent, denied that he was the owner of the ten head of cattle. The appellant's

case was that the animals belonged to Mpujila Kusaga. He, too, adduced evidence from A several witnesses, including the Acting Ward Secretary and the member of the People's Militia. Like the appellant, the Secretary and the militiaman asserted that when he was asked to sign the warrant of attachment, Samweli Mtubatwa refused to do so, saying that the ten head of cattle were the property of Mpujila Kusaga (the B judgment-debtor) and not his. The two witnesses also told the trial court that the respondent was present when the ten head of cattle were attached, but he said nothing.

The Primary Court magistrate and the assessors who sat with him unanimously held, C after a careful consideration of the evidence laid before him, that the respondent had failed to establish that the ten head of cattle were his property. Accordingly, they dismissed the objection. As

already indicated, the learned District Magistrate found himself unable to uphold that decision. In the course of his judgment, he said: D

The court below unanimously accepted the respondent's story that the 10 head of cattle were the judgment-debtor's and so affirmed the seizure. I decline to share that view. There was no evidence to show that the head of cattle were the judgment-debtor's. He merely suspected that E they were the judgment-debtor's but he would not substantiate it. He said "Nilikamata hizo ng'ombe kumi katika zizi la Lazaro (SM2) ninavyojua mimi ng'ombe za mdaiwa-mhukumiwa zilikuwa (sio) zinakaa njia panda ya Msagali." He did not say that the judgment-debtor's head F of cattle were at Lazaro Mtubatwa's homestead. And none of his witnesses said that the 10 head of cattle were the judgment-debtor's. Suspicion alone was insufficient. He ought to have adduced some evidence to show that the 10 head of cattle were the judgment-debtor's. The G judgment-debtor denied that the same were not (sic) his. And strangely enough, the respondent did not cross-examine him on this aspect. And a failure to cross-examine on an important matter ordinarily implies the acceptance of the truth of the witness testimony. (see H Twalla Mohamed Mushi v R., Dar es Salaam Registry Criminal Appeal No. 216 of 1976 (unreported), where the English case of R. v Halter Berkley Hart [l932] 23 Criminal Appeal R. 202, was followed with approval. The appellant, on the other hand, adduced evidence to show that the 10 head of cattle were his. There was the evidence of Lazaro Mtubatwa, which was not I challenged, that the 10 head

of cattle were the appellant's. The respondent failed to show on balance of prependerances A that the 10 head of cattle were the judgment-debtor's.

With respect to the learned District Magistrate, I am of opinion that he was not entitled B in law to fault the Primary Court's decision in this case. In my view, he misdirected himself on three points, namely: (1) onus of proof; (2) effect of the failure by the appellant to cross-examine the judgment-debtor on the latter's assertion that the ten head of cattle did not belong to him; and (3) the credibility or otherwise of the evidence given C and adduced by the respondent. I propose to deal with these matters in turn.

1. ONUS OF PROOF IN OBJECTION PROCEEDINGS

It is clear from his judgment, that the learned District Magistrate entertained the view that D in objection proceedings the onus of proof lies on the judgment-creditor. With respect, this notion was wrong in law. In Lukasi Paskali v Mgwabi Mkaka, (Dodoma Registry) (PC) Civil Appeal No. 13 of 1987 (unreported), I dealt at length with the issue E of onus of proof in objection proceedings. In the instant case, I can, I think, do no better than to quote, in extenso, what I said in that case, at pp. 2-4 of the cyclostyled judgment:

The Primary Court was required to determine the issue raised in the objection proceedings in F accordance with Rule 70 of the Magistrates' Courts (Civil Procedure in Primary Courts) Rules, 1964). Unlike the rules in the Primary Courts Criminal Procedure Code, which on the coming into operation of the Magistates' Courts Act, 1984, ceased, as a result of being G repealed and replaced by the rules embodied in the Third Schedule to the Act I have

just mentioned, to have any force of law, the Magistrates' Courts (Civil Procedure in Primary Courts) Rules, 1964 (hereinafter referred to as "the Rules"), were not repealed. They were H saved by the provisions of s. 72(3) of the Magistrates' Courts Act, 1984, which reads:

"Any applicable regulations made under the Magistrates' Courts Act 1963, and in force prior to the date upon which this Act comes into operation shall remain in force as if I they have been made under this Act until such time as they are amended or revoked by rules made under this Act."

1989 TLR p107

SAMATTA J

Rule 70 of the Rules provides as follows: A

(1) Any person, other than the judgment-debtor, who claims to be the owner of or to have some interest in property which has been attached by the court may apply to the court to release the property from attachment. Stating the grounds on which he bases his B objection.

(2) On receipt of an application under sub-rule (1), the court shall fix a day and time for hearing the objection and shall cause notices thereof to be served upon the objector, C the judgment-creditor and the judgment-debtor.

(3) No order for the sale of such property shall be made until the application has been determined and if any such order has been made, it shall be postponed. D

(4) On the day fixed for the hearing, the court shall investigate the objection and shall receive such evidence as the objector, the judgment-creditor and the judgment-debtor may adduce. E

(5) If the court is satisfied that the property or any part of it does not belong to the judgment-debtor, it shall make an order releasing it, or such part of it, from attachment. (the underlining is my own). F

The question that is raised by the present appeal is whether the District Court was right in law in holding, as it did, that in the objection proceedings the onus of proof lay on the judgment-creditor. In my opinion, the District Court misdirected itself in so holding. The G general principles governing the determination of the incidence of onus is one stated in the Latin Maxim: semper necessitas probandi incumbit illi qui agit [see s. 110 of the Evidence Act, l967]. Put in a modern language, the maxim would read something like this: He who seeks a remedy must prove the grounds thereof. In certain situations the H legislature may, and sometimes does, lay down rules which are inconsistent with that general principle, but it seems to me, having regard to the wording of Rule 70(5) of the Rules, that in that rule the general principle has not been displaced. On the contrary, I am of the settled opinion that the rule embodies that principle. If the legislature had intended I to effect a departure from

1989 TLR p108

SAMATTA J

that [principle] and impose the onus of proof on the judgment-creditor it could easily A have demonstrated that intention by wording sub-rule (5) as follows or to this effect:

"(5) If the court is not satisfied that the property or any part of it belongs to the judgment-debtor, B it shall make an order releasing it, or such part of it, from attachment."

It is instructive to note, I think, that in objection proceedings conducted in higher courts under the provisions of Order XXI Rules 57 and 58 of the Civil Procedure Code, 1966, C the objector, to quote the latter rule, "must adduce evidence to show that at the date of attachment he had some interest in ... the property attached."

I adhere to those words. In my view, the learned District Magistrate in the present case, like his learned brother in Paskali's case supra, strayed into an error in law in D entertaining the view that in objection proceedings the onus of proof lies on the judgment-creditor. As, I hope, clearly demonstrated in the passage I have ventured to quote, the onus in such proceedings lies on the objector. In the instant case, therefore, E the burden of proof lay on the respondent. That statement brings me to a consideration of the second matter.

2. THE EFFECT OF THE FAILURE BY THE APPLICANT TO CROSS-EXAMINE THE JUDGMENT-DEBTOR ON HIS ASSERTION THAT F THE TEN HEAD OF CATTLE DID NOT BELONG TO HIM

It is perfectly true, as was remarked by the learned District Magistrate, that the appellant did not cross-examine Mpujila Kusaga on the point. The two cases the learned District G Magistrate cited - Twalla Mohamed Mushi's case and Walter Berkley Hart's case - do not lay down an inflexible rule of law that any important evidence which is not challenged by way of cross-examination must be taken to be conceded as being true. A failure to cross-examine is merely a consideration to be weighed up with all other factors H in the case in deciding the issue of truthfulness or otherwise of the unchallenged evidence. The failure does not necessarily prevent the court from accepting the version of the omitting party on the point. The witness' story may be so improbable, vague or contradictory that the court would be justified to reject it, notwithstanding the opposite I party's failure to challenge it during cross-examination. In any case, it may

be apparent on the record of the case, as it is in the instant case, that the opposite party, A in omitting to cross-examine the witness, was not making a concession that the evidence of the witness was true. It must be emphasized to the magistracy, I think, that when litigants who appear before them are unrepresented and not the kind of persons who are likely to understand clearly all the intricacies of court procedure, ordinarily it is B not right to hold against such persons mistakes they might make such as failing to cross-examine. It must not be forgotten that in some customary legal systems in our country, cross-examination was not regarded as an important procedure in a trial. Sometimes the attitude of an ordinary African litigant (or even an accused person) who is C not formally educated is: "let him (his opponent) and his witnesses tell their story. I will let the court know my version of the matter when it is my turn to go into the witness box". It is not, therefore, surprising that when he is later told that his omission to cross-examine, or to cross-examine on an important point, has been taken by the court D as demonstrating or suggesting that he was accepting the witness' version, such a litigant may be tempted to believe that the law is an ass. In the interest of justice, when a litigant who is not likely to be familiar with the intricacies of court procedure appears before him, a magistrate

should explain to him, briefly and in a simple language, the E objects of cross-examination - "to impeach the accuracy, credibility and general value of the evidence given in chief; to sift the facts already stated by the witness, to detect and expose discrepancies, or to elicit suppressed facts which will support the case of the F cross-examining party." It should be made perfectly clear to such a litigant that if there is anything relevant which the opposite party or his witness has not said or touched upon in his evidence-in-chief which he would like the court to know and take into account in deciding the case, he can and should try to elicit the thing from the opposite party or his G (the opposite party's) witness, as the case may be. The party should further be informed, in a simple language, that where the witness' version defers materially from his own version, he should, as briefly as possible, put his version to the witness with a view of making him (the witness) agree that what is going to be alleged by him or his witness is H what occurred or was said on the occasion in question. If the party knows any reason why the opposite party or his (the opposite party's) witness should lie or be inclined not to tell the whole truth, then, ordinarily, he should cross-examine him on the point and put the reason to him. Ordinarily, these matters need be explained to the party (or accused) I only once - just before he embarks

upon the cross-examination of the first witness. I am confident that if magistrates take A such trouble, irrelevant cross-examination and wrong omissions to cross-examine by such litigants will be minimised. To revert to the instant case, I am of opinion that the failure on the part of the appellant to cross-examine the judgment-debtor on his (the B latter's) assertion that the ten head of cattle did not belong to him cannot, upon the evidence on record, be regarded as amounting to a concession by the appellant that the assertion was true. Finally, I must deal with the third point.

3. THE CREDIBILITY OR OTHERWISE OF THE EVIDENCE GIVEN AND C ADDUCED BY THE RESPONDENT

There were, in my opinion, three principal reasons for disbelieving the evidence adduced by the respondent. The first reason is that, according to the testimony of the two D independent witnesses in the case, the Acting Ward Secretary and the militiaman, although he was present when the attachment of the ten head of cattle was carried out, the respondent uttered no word. It seems improbable, if, as was asserted by him in the witness-box, the animals were his property, that the respondent would not have E protested to the Secretary against the attachment. The second reason relates to the glaring discrepancy between the evidence of the respondent and that of his brother, Samweli Mtubatwa, the man in whose kraal the ten head of cattle were at the time of F attachment. It will be recalled that the respondent asserted that he kept 24 head of cattle in the kraal, but according to his brother, the number of the cattle was 12. This inconsistency is, in my judgment, unresolvable. The gap which yawns between the two assertions demonstrates, in my opinion, that the assertion that the attached head of cattle G are the respondent's property is nothing but a moonshine, designed to defeat justice in this case. Thirdly, according to the evidence of the Acting Ward Secretary and the militiaman, when

asked to append his signature to the warrant of attachment, Samweli Mtubatwa refused to do so, saying that the ten head of cattle belonged to the H judgment-debtor. This piece of evidence shows, in my opinion, that Samweli Mtubatwa's word in the witness-box cannot safely be relied upon.

The conclusion I reach, without any hesitation, from the foregoing is that the Primary Court was right in holding, as it did, that the respondent had failed to discharge the onus I lying on him in this matter. I cannot bring myself to entertain any doubts as to the

correctness of that court's decision. Unlike the learned District Magistrate, I am of A opinion that, in the legal battle, the appellant had two powerful allies on his side - justice and law. Clearly, the learned District Magistrate erred in refusing to share the opinion of the Primary Court.

The appeal is allowed, the decision of the District Court is recalled and that of the B Primary Court is restored. The appellant will have his costs in this court as well as in the District Court.

C Appeal allowed.

1989 TLR p111

D

[zRPz]OBED MTEI v RUKIA OMARI 1989 TLR 111 (CA)

Court Court of Appeal of Tanzania- Dar Es Salaam

Judge Makame JJA, Kisanga JJA and Omar JJA

21 June, 1989

Flynote

Land Law - Survey - Procedure - Effect of failure to follow procedure. E

-Headnote

The parties in this case occupied land next to each other. One of them sent surveyors to measure and demarcate the land in the absence of the other. As a result of the survey a F piece of land was taken away from the land of that other and incorporated in the deed plan of the person who sent the surveyors.

Held: (i) Before making any survey it is the duty of the land officer to make sure that all G third party interests are cleared and if it is a farm the Land Officer must see to it that the owners agree on the boundaries;

(ii) since the procedure was not followed the survey should be conducted again. Appeal allowed in part.

Case Information

Order accordingly. H

[zJDz]Judgment

Omar, Makame and Kisanga, JJ.A.: The appellant Obedi Mtei was sued in the High Court by the respondent Rukia Omari for trespass into her land, Plot No. 560 I Kawe Beach, Kinondoni District. The prayer was also for the demolition of the huts

1989 TLR p112

OMAR JJA, MAKAME JJA AND KISANGA JJA

unlawfully built by the appellant. The learned trial judge gave judgment for the A respondent and ordered that the respondent Rukia be put in possession of all that land encroached upon by the appellant. The beacons removed by the appellant were to be put on their right places as approved by the Director of Surveys and Mapping and the B appellant was ordered to demolish the hut he built on the respondent's land. Being dissatisfied by this decision the appellant is now appealing to this court.

The facts of this case are as follows: That one Rukia Mohamed now the respondent was either sold or given as a gift a piece of land at Kawe Beach area, measuring l.25 acres of C land, by one Obeid Mtei who had known her for sometime and the two had helped each other in many ways as good friends. The land was soon measured in the presence of the Chairman of the Allocation Committee, P.W.2, Amimu Hamisi, and both he D appellant and respondent and some elders of the village. Beacons were put there in the form of iron rods. Two weeks later Rukia sent a professional surveyor, P.W.3 who measured the land again and put beacons. Appellant was not there this time. This was in June, l986. In August, l986 when P.W.3, visited the land the second time the two E beacons put by him were not seen, they had obviously been removed and the third beacon was found under the hut which appellant Obeid had built. There was a wire fence stretching from one side of the plot to the other and taking away about 2272 square meters of the respondent's land.

Appellant avers that this extra land which was incorporated in the deed plan was taken F away from his land unlawfully, when respondent sent surveyors to measure and demarcate the land in his absence and allocated 1.5 acres to Rukia instead of 1.25 of the land which he had given her free of charge but which on her insistance he had signed an G agreement signifying that he had sold her the plot for shs. 5,000/=. There was another piece of land bought by the respondent from villagers which was added to this one obtained from the appellant. Appellant does not dispute this former piece. He is only concerned with the 1.25 acres sold or given to her which was originally part of his plot. H

The Director of Surveys and Mapping who was called by the appellant to the farm after he had complained to him of the irregularities in the fixing of beacons, had this to say:

Normally before we make any survey it is the duty of the Land Officer to make sure that all the I third party interests are

1989 TLR p113

cleared and if it is a farm, the land officer must see to it that the owners agree on the A boundaries.

In the present case the surveyor did not follow the procedure in that he did not involve all the neighbours and he did not have a certificate signed by the Land Officer and the B neighbours regarding his survey and the boundaries. Further he said in his testimony "I see this plan Exh.

P.6 it was approved by my office. I see these beacons YR 928 and YR 929. If they were removed it is very serious". C

Considering that the deed plan had been prepared as a result of the survey of P.W.3 in a manner which did not take into account the above procedure of having the owners approve of the boundaries and signifying their approval on a particular certificate which the Director of Surveys had shown to the court while giving evidence, we are of the view that the survey should be conducted again. D

We believe there would be no area of disagreement once the parties are present as they are to our knowledge in full agreement as to what the acreage of each of their plots is.

In the result we allow the appeal to the extent that a re-survey is ordered. The deed plan of plot 560 might or might not change in acreage depending on what part of each of their E respective plots it should embody. The resurvey should be conducted on the lines suggested by D.W.2, Mr. Edwin Njau the Director of Surveys and Mapping, as shown above. We note that there is no dispute regarding the no mansland. F

Appeal allowed in part.

1989 TLR p113

G

[zRPz]MALEKELA MAHITA v KIBUWI NZENGWA 1989 TLR 113 (HC)

Court High Court of Tanzania- Dar Es Salaam

Judge Kyando J

30 June, l989 H

Flynote

Land Law - Mortgage - Definition of mortgage where customary law applies.

Land Law - Limitation - Period to redeem a mortgage created under customary law. I

1989 TLR p114

KYANDO J

-Headnote

In a suit before a trial Primary Court to redeem a mortgage purportedly entered into A more than 70 years ago, the appellant succeeded. On appeal by the respondent the District Court found that there had been no mortgage arrangement as contended by the appellant and that even if there had been one the period for redeeming it had lapsed. B Accordingly the Primary Court decision was reversed.

The High Court, on further appeal found that there was a mortgage arrangement but its redemption was hopelessly barred by limitation.

Held: The Law of Limitation Act, l97l defines a "mortgage" as including, where C customary law applies, as in this case, any arrangement under customary law which has similar effect and incidents as a mortgage. A suit to redeem land in possession of a mortgagee must be brought within twelve years as prescribed under the First Schedule D to the Law of Limitation Act, Part

I. Under Section 3(1) of that Act, every proceeding for which a period of limitation has been provided in the First Schedule to the Act and which is instituted after the prescribed period of limitation "shall be dismissed whether or not limitation has been set up as defence".

Case Information

Order accordingly. E

[zJDz]Judgment

Kyando, J.: The appellant's uncle, Dilunganika Mwanamvuvulu, allegedly mortgaged his 12 shambas to the respondent's uncle Kibuwi bin Mbukwa for three goats, a pair of F "amarekani" pieces of cloth a measure (pishi) of salt and a cock. This was when the appellant was only a baby; he is 76 years now. The respondent is 109 years and he says he has been using the shambas since he was a young man, upon the death of his uncle G Kibuwi bin Mbukwa, from whom he inherited them. His position is that appellant's uncle sold the shambas to his (respondent's) uncle and it is not that he mortgaged them as contended by the appellant. The appellant filed a suit in the Primary Court at Tawa, Morogoro District, seeking to redeem the shambas from the respondent. He succeeded, H and the respondent appealed. On 8/9/88 Shillogila PDM on appeal reversed the decision of the Primary Court holding that there had been no mortgage arrangement as contended or alleged by the appellant and that even if there had been one the period for redeeming the shambas has elapsed. The appellant now appeals to this court against the I decision of learned Principal District Magistrate.

1989 TLR p115

In the first place I accept that the arrangement pleaded by the appellant was a mortgage A transaction. The Law of Limitation Act, l97l, defines a "Mortgage" as including, where customary law applies, as in this case, any arrangement under customary law which has similar effect and incidents as a mortgage. This, as I have said, was such an arrangement B between appellant's and respondent's deceased uncles. Under the first schedule to the Law of Limitation Act, Part I, a suit to redeem land and possession of a mortgagee must be brought within twelve years. And under s.3(1) of this same Act, every proceeding for which a period of limitation has been provided in the First Schedule to the Act and which C is instituted after the prescribed period of limitation "shall be dismissed whether or not limitation has been set up as a defence."

The shambas in the instant case were mortgaged many years ago, when, as I have said already, the appellant, was on his own admission, only a baby and he is 76 years old now. He did not even witness the transaction and as the learned Principal District D Magistrate in the Court below rightly observed, he had been only informed about it by others. His attempts to redeem the shambas now are, as far as the law is concerned, therefore, hopeless as he is barred by limitation. E

The redemption should have been done within twelve years of his uncle mortgaging the shamba's to the respondent's uncle. That this was not done within these years the appellant's rights to the shambas, have been extinguished-under the provisions of s.39 of the Law of Limitation Act, 1971. Like the learned Principal District Magistrate therefore, F I have to hold for the respondent and dismiss, as I hereby do, the appellant's appeal to this Court, with costs. The shambas are to remain the legitimate property of the respondent.

G Order accordingly.
1989 TLR p115
H
[zRPz]SIMON MLELEMA v NINGISTIIWA KACHWELE 1989 TLR 115 (HC)

Court High Court of Tanzania- Mwanza
Judge Munyera J

13 July, 1989
Flynote
Family Law - Inheritance - Whether a childless widow is entitled to the property left by her I deceased husband - Rule 77, GN 279/63.
1989 TLR p116
MUNYERA J
-Headnote
The appellant is appealing against the decision of the Senior District Magistrate who had A awarded the respondent her claim of 8 cows. The appellant is submitting that the District Magistrate had erred in law.
The appellant had sued the respondent, his step mother, the widow of the deceased for B the recovery of eleven head of cattle which he alleged were his inheritance. The respondent countered that said cattle were acquired through joint efforts of her deceased husband and herself. She further contended that the clan council had allowed her to retain 8 out of 11 cattle.
Held: (i) Under Rule 77 of GN 279/63, a childless widow is entitled to maintenance out C of the property left by her deceased husband;
(ii) in this connection, the decision by the clan council and the District Court to award respondent the 8 cows was valid.
Case Information
Appeal dismissed. D
No case referred to.
[zJDz]Judgment
Munyera, J.: The appellant was the plaintiff on the trial. He sued the respondent for E recovery of eleven (11) head of cattle he alleged were his inheritance. It was agreed the respondent was his step mother, his father married her and lived with her for more than 20 years. His father died in 1986 and by then he (appellant) had his separate homestead. F On the deceased's death everything remained in the hands of the respondent. In 1987 the appellant filed this suit claiming the property left by his deceased father, in particular he claimed eleven head of cattle then in possession of the respondent. In her defence the defendant/respondent argued the cattle were acquired through joint efforts of her G deceased husband and herself. She called several witnesses who told the court that the clan council had allowed her to retain 8 out of the 11 cattle left by her husband. The trial court unanimously rejected the respondent's defence and

gave judgment for the appellant and ordered the respondent to surrender all 11 cows to him. The respondent H successfully appealed to the District Court. In turn the appellant brought this appeal, blaming the Senior District Magistrate for reversing the judgment of the trial court.
The trial court erred in law. It was undisputed the respondent is the widow of the I appellant's father, they lived together for about 25 years although they were not blessed with children. It appears
1989 TLR p117
the appellant's mother had gone away and he himself was brought up by his step mother, A the respondent. Rule 77 of GN 279/63 provides a childless widow is entitled to maintenance out of the property left by her deceased husband. In this connection there was evidence the clan council had given 8 cows to the respondent and the decision was B a wise one, the trial court ought to have abided by it. For that reason the decision of the District Court awarding her 8 out of ll cattle left by the deceased was a sound one and is upheld. The appeal is dismissed with costs.
C Appeal dismissed.
1989 TLR p117
D
[zRPz]JEROME CHILUMBA v AMINA ADAMU 1989 TLR 117 (HC)

Court High Court of Tanzania- Mtwara
Judge Maina J

13 July, 1989
Flynote
Family Law - Maintenance - Quantum - Factors to be taken into consideration when awarding maintenance. E
-Headnote
In a suit for maintenance of a child born out of wedlock the Primary Court ordered the appellant to pay the respondent one thousand shillings per month in maintenance. On appeal the District Court enhanced the monthly payments to one thousand two hundred F shillings relying on the provisions of paragraph 3(3)(c)(iii) in the Fourth Schedule to the Magistrates Court Act, which provides that attachable salary "shall not be deemed to include two-thirds of any salary or wage which exceeds one hundred and fifty shillings monthly". The appellant's monthly salary was shs.3,578/=. G
The High Court found both lower courts to have erred in their application and understanding of the law and reduced the monthly maintenance payments to shs.600/=.
Held :In a case for maintenance, it is important for a trial court to find out the income of H the person sued in order to be able to decide the amount to be paid.
Case Information
Appeal allowed.
No case referred to. I

1989 TLR p118
MAINA J
[zJDz]Judgment
Maina, J.: In a suit field at Mtwara Urban Primary Court, the appellant was ordered to A pay to the respondent a sum of shs.
1,000/= per month for maintenance of a child born out of wedlock. The appellant was dissatisfied as he thought that the amount awarded was too high. He appealed to the District Court which enhanced the amount to shs.1,192/90 per month. This appeal seeks B an order by this court to reduce the amount awarded by the lower courts.
There was no dispute that the appellant is the father of the child born out of wedlock following the appellant's love affairs with the child's mother who is the respondent in this case. The appellant had in fact been paying money for the maintenance of the child, but it C seems that misunderstandings arose between the parties on the amount which was being paid. The appellant's contention is that he cannot afford to pay the amounts awarded by the lower courts considering his income and the people who depend on him. The Primary Court did not even consider the appellant's ability to pay the amount D awarded. No effort was even made by the trial Primary Court to find the incomes of the parties. The amount of shs.1,000/= was awarded arbitrarily. In a case for maintenance, it is important for a trial court to find out the income of the person sued in order to be E able to decide the amount to be paid. The Primary Court erred in ordering the appellant to pay shs.1,000/= monthly without even finding out the appellant's income and ability to pay.
The District Court took into consideration the appellant's monthly salary of sha.3,578/= and ordered that the appellant should pay one-third of his monthly salary as maintenance F of the child. The learned district magistrate cited the Fourth Schedule to the Magistrate's Court Act, paragraph 3(3)(c)(iii) which provides that attachable salary "shall not be deemed to include two - thirds of any salary or wage which exceeds one G hundred and fifty shillings monthly." That provision means that two-thirds of a persons salary should not be attached. It does not mean that one-third of a salary is automatically the amount of maintenance for a child. The amount which a child should be paid as maintenance will depend on the circumstances of each case. That amount cannot automatically be one-third of the salary of the child's father. H
There was no dispute that the appellant has a wife and three children who depend on him. Two of the children are in secondary schools. These are factors which the learned district magistrate should have considered in deciding the amount to be paid to the child I born out of wedlock. The appellant's children and his wife are entitled to a share in the appellant's salary. It is unfair and
1989 TLR p119
unreasonable to give to one child one-third of the salary, and the appellant, his wife and A the other three children to share the remaining two-thirds of the salary. All the appellant's children and other dependents are entitled to equal share of the salary for their maintenance. The order of the District Court that the respondent should be paid one-third of the appellant's salary is set aside. B

I have considered all the circumstances in this case including the appellant's salary and number of dependents. I order that the appellant pays to the respondent the sum of sh.600/= per month for the maintenance of the child, effective from July, 1988. C

Appeal allowed.

1989 TLR p119

D

[zRPz]THE NATIONAL BANK OF COMMERCE v SAIDI ALLY YAKUT 1989 TLR 119 (HC)

Court High Court of Tanzania- Mwanza

Judge Mwalusanya J

20 July, l989 E

Flynote

Banking - Collecting banker - Bank allowing customer to draw against uncleared effects - Bank manager representing to the customer that effects have been cleared - Duty of the banker. F

-Headnote

At the instigation of a branch manager of the National Bank of Commerce, a country cheque was drawn in favour of the defendant, deposited and effects withdrawn before clearance. The bank wanted the customer to agree that the amount withdrawn be treated as an overdraft. On the customer's refusal to so agree the bank sued him to recover the G amount of the 'lost' cheque.

Held: (i) A collecting bank owes a duty of care to its customers in that it should conduct its activities with care and circumspection;

(ii) from facts of the case the bank was either grossly negligently or acted H deliberately to incur such loss.

Case Information

Judgment for the defendant.

Cases referred to. I

1. NBC v Parma Shoe Co. Ltd Ci v Appeal No. ll of l988 (unreported).

1989 TLR p120

MWALUSANYA J

Banturaki, for the Plaintiff A

Rugarabamu, for the defendant

[zJDz]Judgment

Mwalusanya, J.: The plaintiff the National Bank of Commerce, is claiming from the B defendant Saidi Ally Yakut shs.283,684/40 which is an outstanding sum in the defendant's current account by way of an overdraft at Karagwe Branch of the N.B.C. It is said the defendant fraudulently obtained overdraft facilities at the said bank to the tune of sum of money that is claimed. The defendant who was represented by counsel Mr. C Rugarabamu denied that he ever made an application for an overdraft, let alone a fraudulent application for an overdraft. The plaintiff was represented by counsel Mr. Banturaki from the Tanzania Legal Corporation.

The sole witness for the plaintiff was Mr. Edward E. Mbogo (PW l) who is the current branch manager of N.B.C. at Karagwe since May l985. Prior to that, the branch D manager was one Mr. Madaha. It is common ground that the defendant has a current account with the N.B.C. at Karagwe. According to the records in possession of PW 1 the defendant on 5/5/l984 deposited a sum of shs.279,500/= in his account using a country cheque of that sum that was drawn by a customer having an account at N.B.C. E Market Street, DSM. Then on 7/5/l984 the said defendant was allowed to draw the shs.279,000/= from his account using his cheque which is Exh.D in court. The witness said that they paid the defendant before his country cheque was cleared in DSM; and that was because they trusted the defendant. F

Then the witness PW1 testified that they sent the country cheque to Market Street, DSM for clearance. But it is said the said cheque never reached DSM, as it got lost. According to para 6 of the plaint it is said: 'That the cheque mentioned above was G destroyed at Karagwe Branch and never reached the paying Bank, Market Street, DSM.' So we can't tell if it was sent to DSM or it was lost at N.B.C. Karagwe Branch. Be that as it may, at the end of l985, it was decided to contact the defendant so that he accepts that sum to be an overdraft. H

However the defendant refused to accept the sum of shs.279,500/= as an overdraft. So that is why the bank filed this suit.

As earlier indicated the defendant in his defence emphatically denied that he ever applied for an overdraft let alone a fraudulent application for an overdraft. He testified that I throughout the transactions he dealt with the branch manager of the bank one

1989 TLR p121

MWALUSANYA J

Mr. Madaha. He said that on 5/5/l984 the bank manager Mr. Madaha went to see him A with his relative who was allegedly coming from Shinyanga. It is said this relative of the bank manager was staying at the Guest House of the defendant in Room 5. It is further stated that the bank manager revealed that his relative wanted some cash and had a country cheque for shs.279,500/= drawn at the Market Street, N.B.C. DSM. The B defendant said that he told the manager that he had then only shs.l00,000/= cash, which he handed over to the manager, and the manager handed it over to his relative. At the same time it is said that the bank manager deposited the shs.279,500/= in the defendant's account vide paying-in-slip which is Exh.B in court. It is said two days later, C that is on 7/5/l984 the bank manager phoned the defendant stating that the country cheque he had deposited had been cleared in DSM and so he could come at the bank and draw the shs.279,500/= and pay the relative of the manager the outstanding sum of shs.l79,500/=. The defendant duly went to the bank and drew shs.270,000/= vide his D personal cheque Exh.D. The said cheque was authorised for payment by the bank manager and the bank accountant. After that it is said the defendant duly handed over shs.179,500/= to the bank manager so that he could hand over to his relative. E

The defendant further stated that at the end of 1985 he was surprised to learn that the country cheque had been lost and that they wanted him to pay the bank the shs.279,500/=. He said that he refused to accept the suggestion that shs.279,500/= should be regarded as an overdraft. F

Counsel for the defendant Mr. Rugarabamu submitted that his client was not liable. He said that the bank was negligent and so the blame lies squarely on them. He contended that as the bank had allowed his client to collect the money before the cheque was cleared in DSM and later the said country cheque was destroyed by the bank, then the G bank was to blame. He said that plaintiff bank owed a duty of care to the defendant not to destroy the country cheque or else they should not have allowed the defendant to withdraw the money until the cheque was cleared. Mr. Rugarabamu cited the case of National Bank of Commerce v Parma Shoe Company Civil Appeal No. 11/l988 by H the Tanzania Court of Appeal (unreported) which was a decision from an appeal in the case No. 56 of l983 which I decided at the High Court Mwanza.

In my judgment I find that this claim has absolutely no legal basis. The collecting bank I owes a duty of care to its customers, such that it conducts its activities with care and circumspection.

1989 TLR p122

There is need for the banks to display vigilance when handling their customer's financial A matters. Here is the case when the defendant was allowed to withdraw the money from his account on the strength of the word of the bank manager that his country cheque had been cleared. The bank manager is a senior officer of the bank and so he B has to be trusted. It cannot be doubted that the defendant was so told, as the plaintiff bank had no courage to call that bank manager as a witness so that he could refute the word of the defendant. At the same time we are told that the country cheque was destroyed by some bank officials at the N.B.C. Karagwe Branch - see para six of the C plaint. In these circumstances how can the defendant be blamed for the destruction of the country cheque which was destroyed by employees of the plaintiff bank? The blame surely lies squarely on the plaintiff bank. The bank was grossly negligent and the defendant had no hand in it. D

I agree with the defendant that at no time did he ever apply for an overdraft, let alone made a fraudulent application for an overdraft. The loss to the bank was caused by the employees of the bank, arising from their negligent or deliberate conduct. I am surprised that the bank had the guts to come to court to seek relief in the mattet they have presented it. E

In the event this suit is dismissed with costs. I enter judgment for the defendant.

F Order accordingly.

1989 TLR p122

[zRPz]EAST AFRICAN DEVELOPMENT BANK v GODES LIMITED 1989 TLR 122 (HC)

Court High Court of Tanzania- Dar Es Salaam

Judge Bahati J

20 July, l989 G

Flynote

Company Law - Winding-up proceedings - Proceedings based solely on a disputed debt - H Whether petitioner is a creditor - Whether petitioner has a locus standi.

Company Law - Winding-up proceedings - Failure of respondent to file affidavit in opposition within the prescribed time - Whether court has discretion to extend the time to file affidavit in opposition - Rule 35 of the English Companies (Winding-up) Rules, 1929, I s.248 of the Companies Ordinance, Cap. 212.

1989 TLR p123

BAHATI J

-Headnote

While counsel for the petitioner argued that the respondent had no locus standi because A of failure to file an affidavit in opposition within the prescribed period and that the court had no power to enlarge that time, counsel for the respondent charged that the petitioner had no locus standi because the sole basis of the proceedings was a disputed debt which did not make the petitioner qualify as creditor. B

Held: (i) Although the provision of rule 35(1) of the Winding-up Rules, 1929 do not confer upon the court discretion to enlarge time for filing of affidavit in opposition to petition, the second proviso to section 348 of the Companies Ordinance, when C interpreted liberally allows such discretion;

(ii) the order of the Registrar giving more time to file the affidavit was perfectly in order and the respondent has a locus standi to appear and defend the petition;

(iii) since the petition is based solely on a disputed debt the petitioner has no D locus stand in this matter since he is not a creditor within the meaning of section 169 of the Companies Ordinance.

Case Information

Petition dismissed. E

Mkono, for petitioner

Mkatte, for respondent

[zJDz]Judgment

Bahati, J.: Mr. Mkono learned counsel for the petitioner submitted that he had a preliminary objection to make. He then went on to present his objection which was to F the effect that in as much as the respondents failed to file their affidavit in opposition to the petition within 7 days of the date on which the affidavit verifying the petition was filed, then they cannot file it at any other time after that. Mr. Mkono referred to Rule G 35(1) of the English Companies (Winding-Up) Rules, 1929 which are made applicable to Tanganyika by section 348 of the Companies Ordinance, Cap. 212. He argued further that since we are dealing with applied law the rules are mandatory. Mr. Mkono revisited the facts in this case which were that the affidavit was ordered to be filed on H 7/6/89 when the respondents had been served on 6/5/89. This would be 24 days after the last day in which they could file their affidavit in opposition and that as such they were completely barred from appearing in court or to do anything in relation to this winding up. Mr. Mkono submitted further that there was no provision in the law for an I extension of time to file an affidavit in opposition to a petition for

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BAHATI J

winding up. He referred to section 2 of the Civil Procedure Code and submitted that the A Civil Procedure Code was inapplicable because there was specific provision on winding up proceedings namely the Winding Up Rules. He submitted also that because the affidavit in opposition to the petition was not made in time he found no cause to B answer it within 3 days as rule 35(2) of the Winding-Up Rules requires. Mr. Mkono submitted that because of what he had said above, there was no affidavit in opposition to the petition and therefore the respondents were strangers to the petition and they cannot plead anything as the petition remains undefended. He prayed that the liquidator be C appointed. He concluded that in case the court ruled otherwise then he would ask for leave to file a reply to the affidavit in opposition to the petition.

In reply Mr. Mkatte, learned counsel for the respondent company submitted that the D preliminary objection was misconceived. He argued that after the petition was filed on 6/5/89, there was a notice given to the respondent dated 6/5/89, requiring the respondent to appear before the Registrar on 13/5/89. Mr. Mkatte appeared on that date and it was agreed that the reply to the petition be filed by 9/6/89. Mr. Mkatte E submitted further that the Court in its inherent jurisdiction made the order as to when the reply to the petition should be filed. He went on to submit that meanwhile a chamber application had been filed for appointment of a liquidator and the hearing of it was to be F on 16/6/89. On 16/6/89 Mr. Mkatte sought leave to file a counter affidavit to the application for appointment of a liquidator and leave was granted without any opposition and the petitioner's advocate applied to file a reply to the counter affidavit which was yet to be filed first. Then the matter came for hearing.

Mr. Mkatte submitted that he agreed with the rules of the Companies (Winding-Up) G Rules 1929, but he invited the court to look at the proviso to section 348 of the Companies Ordinance Cap. 212. He contended that what was done by the court in this case was not inconsistent with the provisions of Cap. 212. He therefore submitted that he was properly and competently before the court. As for Mr. Mkono's prayer for leave H to file a reply, Mr. Mkatte contended that he should not be granted leave because he had been given more than 3 days to do so.

Mr. Mkatte then went on to argue his own preliminary point which is to the effect that the petition is based on a guarantee given by the respondent, but that the respondent is I contending that he is discharged from the guarantee by reason of material variation of

the agreement. He submitted that it is arguable whether the respondent is liable on the A guarantee or not, and under section 48 and 85 of the Law of Contract Ordinance there are arguments to be resolved. Concerning the letter replied on in para 10 of the petition, Mr. Mkatte contended that in the respondent's affidavit it was averred that the letter was B obtained by undue influence and coercion. He submitted that because of this it was not meet that a provisional liquidator be appointed. He contended that such liquidator would have no locus standi unless the two legal points raised above are resolved and that the dispute over the guarantee can only be resolved in another way other than the petition, C because once a debt is disputed then no proceedings for a petition based on the debt can be entertained and should be

dismissed. He said that the rationale for that was that the petitioner is not a creditor in terms of section 169 of the Companies Ordinance and therefore he cannot petition for a winding up of the company. D

Mr. Mkatte referred the Court to various authorities. The first authority was Re Tanganyika Produce Agency Ltd. [1957] E.A. 241 which held that a disputed debt cannot be used in winding up proceedings. Then he referred to case of Re Lympne Investments Ltd [1972] 2 All ER 385 which held that: E

(i) it would be wrong to stand over a winding up petition in order that the disputed issues might be resolved in other proceedings; F

(ii) when a debt was disputed on substantial grounds the petitioner was not a creditor within the meaning of section 244 of the Companies Act who had a locus standi to present a petition even if the company were insolvent; and G

(iii) the exercise of a dispute on substantial grounds as to the existence of a debt defeated the contention that the company had "neglected" within the meaning of section 223(a) of the Companies Act to pay the debt. H

The other authority was the case of Mann and Another v Goldstein and Another [1968] 2 All ER 769 at 776i and 778c and f. It was held here that as the existence of the debt on which each winding-up petition was founded was disputed on grounds showing a substantial defence requiring investigation, the petitioner did not establish that I he was a creditor and thus had the locus standi to

present the petition and the companies court was not the appropriate court to decide the A dispute; accordingly, the presentation of the petitions was an abuse of the process of the court, and injunctions would be granted restraining, until trial or further order, the advertisement or prosecution of the winding-up petitions. B

Mr. Mkatte also referred to Palmer's Company Precedents 17th Edition at page 26. He prayed for a ruling to the effect that the petitioner has no locus standi and the petition to be dismissed with costs.

In reply, Mr. Mkono submitted that there was no way in which the winding up rules C could be avoided and that even the inherent powers of the court could not be used to override the express provisions of the law, and a violation of the rules could not be good grounds for dispensing justice. He went on to argue that the petition did not concern only the petitioner as there were another creditors who had joined this petition. Mr Mkono D conceded however that where there is a dispute about the debt there cannot be a winding up. Concerning the validity of the guarantee, Mr. Mkono stated that issue was sub judice. He however reiterated his stand that the petition was undefended as nothing E had been filed in answer to it in time. He even stated that he was prepared to enter a consent judgment to the effect that as far as the guarantee matters are concerned, they should be stayed.

Mr. Mkono further submitted that a provisional liquidator should be appointed because the petition was undefended. He also said that the insolvency of the respondent had not F been denied.

Mr. Mkatte was allowed to reply in connection with his preliminary point and he elaborated on what was meant by section 169 of Cap. 212. He submitted that if the petitioner has no locus standi there cannot be any question of a liquidator being appointed. G

The points for consideration and decision in this case are not many. One of them is with regard to the preliminary point of Mr. Mkono to the effect that since the affidavit in answer to the petition was filed out of time the petition is undefended and counsel for the respondent cannot appear in any manner in court. I can see the force of the argument of H Mr. Mkono. It is quite correct to say that this court must apply the Companies (Winding-up) Rules of 1929 in terms of section 348 of the Companies Ordinance Cap. 212. It is also quite correct to say that rule 35(1) of those Rules which are English Companies Rules, requires the affidavit in opposition to the petition for a winding up to I be filed within 7 days of the date on which the affidavit verifying the petition is filed. The respondent

did not file the affidavit in opposition within 7 days. According to rule 35(1) he was out A of time. But that is not all. We have a rather peculiar situation. I will set out the facts briefly because Mr. Mkatte did already refer to them in his submission. When the petition was presented to the court, the Registrar issued a notice of a petition for winding up to the respondent notifying the respondent of the presentation of the petition and of B the date for the mention of the petition. The petitioner was being required by that notice to appear in court for the mention of the petition. The notice of the petition was directed to be sent to the respondent's advocate and copy to the petitioner's advocate. The C appearance was to be seven days from the date of the notice. On 13/5/89 both advocates appeared and it was ordered that the affidavit in opposition should be filed by 9/6/89 and the case would be mentioned on 10/6/89. Now, in view of the above facts, can it be said that the respondent was time barred to present his affidavit in answer to D the petition? According to rule 35(1), he was certainly out of time. But it is the court itself which made an order that he should file his affidavit by 9/6/89 which would be over 30 days since the affidavit verifying the petition had been filed. Mr. Mkono argues that even the court cannot extend the time to file the affidavit in opposition once the E prescribed time has passed because that would be a violation of the rule and that the court had no inherent power to order an extension after the time had lapsed.

Mr. Mkatte thinks otherwise. His stand is that the respondent did everything in obedience to the orders of the court. He cannot be said to have done anything wrong F and that the court certainly had power to do what it ordered. I should add on the record that the petitioner's counsel never objected to the order of 13/5/89 giving the respondent time to file his affidavit by 9/6/89. It would appear that the provisions of rule 35 were not in the contemplation of the petitioner's counsel or the Registrar of the High Court. It G seems to me that the process set out on 13/5/89 cannot be reversed. If the petitioner had any objection to what was being ordered by

the court on 13/5/89 he should have pointed out to the court about rule 35. The respondent was led into believing that all was in order. The petitioner is now estopped to raise this argument about the 7 days H limitation according to rule 35.

Whereas I can see nothing in rule 35 which gives power to the Court to extend the time for the filing of an affidavit in opposition, I am unable in the circumstances of this case to hold that the preliminary point of Mr. Mkono should be sustained because such point I should have been raised at the first appearance in court.

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BAHATI J

Service on the respondent was on 6/5/89 and the parties appeared in court on 13/5/89 A and agreed to the affidavit in reply to be filed by 9/6/89. The petitioner cannot be heard now to say that the affidavit in opposition was filed out of time when he consented to the court making an order that it be filed after more than 7 days. It would be inequitable to sustain the petitioner's objection in this case. B

In Miscellaneous Civil Case No. 128 of 1968 - In Matter of petition under section 163, 167, and 169 of the Companies Ordinance - In re African Marble Company Ltd (unreported) Mapigano, J. made a ruling in connection with the non-compliance by the C petitioner with rule 27 of the Companies (Winding-up) Rules 1929 and rule 29. These rules require the verification of the petition by an affidavit within 4 days after the petition is presented (rule 29), and the advertisement of the petition seven days before the hearing (rule 27). None of these matters had been done by the petitioner. Mapigano, J. D observed in his ruling thus: "I should think that the non-compliance in this matter was purely due to the ignorance of the rules on the part of the petitioner and its advocate and not a deliberate one. I apply my discretion and grant the petitioner 21 days from today to rectify the errors". E

A reading of rules 27 and 29 will show that no discretion for extension of time within which to do what is required in the rules is provided in these rules; just like is the case with rule 35(2). Yet the court in that case allowed the petitioner more time to do what is required by these rules. With respect, I agree with the ruling of Mapigano, J. which F exhibits good sense and equity. In our case, the position is similar. The learned Registrar gave the respondent with the consent of the petitioner time to file the affidavit in answer to the petition. I am of the view that the learned Registrar had power

to do so. It seems to me that the second proviso to section 348 of the Companies G Ordinance would appear to allow such a thing when interpreted liberally. The interpretation of rules 27 and 29 by Mapigano, J. to include a discretion of the Court to extend time for the doing of what the rules require, would appear to be based on the liberal and wide interpretation of the second proviso to section 348, and I agree with H such interpretation. I would therefore overrule Mr. Mkono's preliminary point and hold that the affidavit in opposition to the petition is properly before the court and that the respondent has a locus standi in these proceedings.

The other important point for consideration and decision concerns the preliminary point I raised by Mr. Mkatte for the respondent to the effect that the petitioner has no locus standi. I

1989 TLR p129

BAHATI J
have already set out the arguments for and against this point. The law on this point is A very clear and it is as per the authorities cited by Mr. Mkatte namely that a disputed debt cannot be used in a winding up proceedings (vide Re Tanganyika Produce Agency Ltd supra). Then there is Re Lympne Investments cited above which held: (i) it would be wrong to stand over a winding up petition in order that the disputed issues B might be resolved in other proceedings; (ii) when a debt is disputed on substantial grounds the petitioner was not a creditor within the meaning of section 244 of the Companies Act who had a locus standi to present a petition even if the company were insolvent; (iii) the existence of a dispute on substantial grounds as to the existence of a C debt defeated the contention that the company had "neglected" within the meaning of section 223(a) of the Companies Act to pay the debt. With respect, I entirely agree with the holding in the above cited cases. Indeed even Mr. Mkono did not seriously disagree with the above holdings. He seemed to be submitting that the petition should be stayed D to await the decision on the guarantee liability. With respect to Mr. Mkono, that would not be possible and indeed the cases just cited would appear to be against that.
In the answer to the petition the respondent annexed various documents showing that the E debt in question is seriously disputed and that there are firm grounds for the dispute.
Furthermore there is the case of Mann and another v Goldstein and another also cited above which held that as the existence of the debt on which each winding up F petition was founded was disputed on grounds showing a substantial defence requiring investigation, the petitioner did not establish that he was a creditor and thus had the locus standi to present the petition and the companies court was not the appropriate court to decide the dispute; accordingly, the presentation of the petitions was an abuse G of the process of the court, ...
Mr. Mkatte had equated the English Companies Act section 224 with out section 269 of the Companies Ordinance. I agree that the substance of these 2 section are the same. Furthermore I also agree with the holding in Goldestain's case above. H
Now, in view of the above authorities and in view of what is contained in the answer to the petition, since the petition is based solely on a disputed debt, I agree with Mr. Mkatte that the petitioner has no locus standi in this matter since he is not a creditor within the meaning of section 169 of the Companies Ordinance. I will I

therefore sustain Mr. Mkatte's preliminary point and hold that the petitioner has no locus A standi in this matter. I therefore dismiss the petition with costs.
Petition dismissed.
1989 TLR p130
B
[zRPz]PAULO LEMA v WILSON CHUMA 1989 TLR 130 (HC)

Court Court of Appeal of Tanzania- Mwanza
Judge Makame JJA, Kisanga JJA and Omar JJA

21 July, 1989 C

Flynote

Civil Practice and Procedure - Review - Whether a judge can review his own order made in revision. D

-Headnote

Paulo Lema is appealing against an order made by Munyera, J. in which the learned judge reviewed his own order made in revision, in a matter arising from a suit to resist E the sale of a house in a public auction. One Steven Lulyalya had two civil suits against him in the Resident Magistrate Court, Mwanza. He sold to the present respondent Wilson Chuma, a house he owned at Igoma, Mwanza on December 15, 1984 while already in November 1984 there was an injunction restraining Lulyalya from disposing of F the house. The same house was bought by Paulo Lema at a public auction on March 3rd 1985. Later Chuma successfully applied before another magistrate to have the sale to Lema set aside and to find Chuma's private purchase of the house valid. An inspection note was sent up to the High Court with the observation that some of the pages of the G record had been removed when Chuma's application was heard so the magistrate had decided the case on the basis of a misrepresentation of fact. The learned judge accordingly set aside the lower count's order and declared the court broker's sale to Lema absolute. Following the High Court's decision, Chuma applied to the same court H for review of its order in accordance with 0.42 of the Civil Procedure Code. Munyera J. was impressed by the Arguments marshalled on behalf of Chuma so he confessed himself in error set aside his own revisional order and ordered that the decision of the trial court be restored in its entirely. The decision aggrieved the appellant hence the I present appeal.

1989 TLR p131

MAKAME J

Held: The learned High Court Judge was not entitled to take another look at his own A decision in the circumstances, and his exposition of the law was incorrect.

Case Information

Appeal allowed.

No case referred to. B

Kahangwa, for appellant

Rutashobya, for respondent C

[zJDz]Judgment

Makame, Kisanga and Omar, JJ.A.: Paulo Lema, who is represented in this appeal by Mr. Kahangwa, learned advocate, is appealing against an order made by Munyera, J. in which the learned judge reviewed his own order he had made in revision, in a matter arising out of a suit in connection with which the present respondent Wilson Chuma, now D represented by Mr. Rutashobya, learned counsel, filed objection proceedings resisting the sale of a house the present appellant had bought at a public auction. The history of the matter is rather complex but it seems to us that the issue before us now is narrow and not so difficult. E

Briefly, the history of the matter is like this: A person called Steven Lulyalya had two civil suits against him in the Resident Magistrate's Court, Mwanza. It is asserted that he sold to Wilson Chuma, the present respondent, a house he, Lulyalya, owned at Igoma, Mwanza, when there was already an injunction, in at least one of the civil cases, F restraining the said Lulyalya from disposing of the said house. The sale to Chuma was on 15th December, 1984 whereas the same house was bought by the appellant Lema at a public auction on 3rd March, 1985. Chuma successfully applied to have the sale to Lema set aside so the result was that Chuma's private purchase of the house was found G to be valid. This decision was by Rugaimukamu, R.M. while the trial magistrate in both the main suits was Mwihava, R.M.

In due course Matui, S.R.M. sent up to the High Court an Inspection Note in which he H observed that some pages of the record had been removed when Chuma's application was heard so the magistrate (Rugaimukamu, R.M.) was not aware of some orders which had earlier on been made prohibiting and restraining Lulyalya from transferring etc. the house at Igoma. As aforesaid, Munyera, J. revised Mr. Rugaimukamu's order and set it I aside. The learned judge was satisfied that Mr. Rugaimukamu's decision was based

on a misrepresentation of facts as a result of some of the pages of the record A disappearing. The learned judge accordingly set aside the lower court's order and declared the court broker's sale to Lema absolute.

Following the High Court's decision Chuma applied to the same court to review its order B in accordance with Order 42 of the Civil Procedure Code. Chuma was in that application advocated for by Mr. Kidela, learned counsel, while Lema was represented by Mr. Kahangwa, learned advocate.

Munyera, J. was impressed by the arguments marshalled on behalf of Chuma so he C confessed himself in error, set aside his own revisional order, and ordered that "the decision of the trial court is restored in its entirety."

Lema is in turn appealing to this court to fault the second decision by Munyera, J. He is, D in other words, asking us to say that Munyera, J. erred in reviewing his order. That is to say, Lema wants the position to remain the same as the one reached by Munyera, J. in the Revisional Order.

Order 42 specifies the situations in which a party may apply for a review. For ease of reference we reproduce the relevant portion of the said Order 42: E

1 - (1)Any person considering himself aggrieved -

(a) by a decree or order from which an appeal is allowed, but from which no appeal has been preferred; or

(b) by a decree or order from which no appeal is allowed, and who, from the discovery of F new and important matter or evidence which, after the exercise of due diligence, was not within his knowledge or could not be produced by him at the time when the decree was passed or order made, or on account of some mistake or error apparent on the G face of the record, or for any other sufficient reason, desires to obtain a review of the decree passed or order

made against him, may apply for a review of judgment to the court which passed the decree or made the order. H

Looking at both Chuma's Application for review and the arguments by Mr. Kidela in the High Court, we are with respect, completely at a loss to appreciate in what sense Order 42 could legitimately be called into play: Chuma urged that, among other things, the High I Court was misled that some pages of the record, containing the injunction were removed, that a temporary injunction

1989 TLR p133

MAKAME J

cannot prevent a party from alienating his property, and he purported to guide the A learned judge to a legal provision contained in Order 37 rule 2(3). In the course of his arguments in the High Court Mr. Kidela did not appear to challenge that some pages of the record were removed, in fact he accepted that an injunction was granted in November, 1984, that is before the private sale to Chuma, only he got mixed up as to B which civil case was relevant. His main support for the application was rather his contention that the proper and only course open to the court if Lulyalya sold the house in defiance of the injunction was to attach the property under Order 37. Mr. Kahangwa's brief submission in reply was that the injunction was binding on Lulyalya and Chuma C bought at his own risk: Lulyalya should have applied under order 37(4) to have the injunction discharged etc. before he sold the house to Chuma.

We think, with great respect, that the attachment mentioned in Order 37 rule (3), which is what Mr. Kidela relied on, and which is clearly what influenced the learned judge as D being missing, is not the attachment as a result or, following as a consequence of the injunction. The attachment is that of party who is disobeying the injunction order. Munyera, J. concluded that in this case no attachment was made as a result of the E disobedience (to observe the injunction order) and mixed up that attachment with the issue as to whether what was done by the trial court before Lulyalya sold to Chuma amounted to attaching the property to the extent of forbidding Lulyalya to sell. That was a question of law, in our view not envisaged by Order 42. The course open to Chuma if F he was dissatisfied with Munyera, J.'s decision in revision was to seek to appeal to this court against the decision which confirmed the sale to Lema as indeed he indicated he would do in Paragraph 3 of his affidavit at Page 49 of the proceedings. G

We are anxious that it should be understood that we are not concerned with the merits of the decision in the revisional order. It is not the function of the present exercise. All that we are really saying is that the learned High Court judge was not entitled to take another look at his own decision in the circumstances and say that his exposition of the law was incorrect. H

We are of the view that this appeal has merit and it is accordingly allowed with costs. The position is therefore as established in the revisional order, that is the house is the present appellant's unless Chuma succeeds in dislodging him from that position. I

Appeal allowed.

1989 TLR p134

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[zRPz]MOHAMED s/o BAKARI AND 7 OTHERS v REPUBLIC 1989 TLR 134 (HC)

Court High Court of Tanzania- Arusha
Judge Chua J

8 August, 1989
Flynote
Criminal Practice and Procedure - Corroboration - Necessity of corroboration where B conditions of identification are unsatisfactory.
Criminal Practice and Procedure - Identification - Case dependent on identification - Evidence to be watertight.
Criminal Practice and Procedure - Substituted conviction - Offence to be minor and C cognate.
-Headnote
Eight appellants were charged in the District Court with robbery and after the conclusion of the trial the lst, 2nd, 4th, 5th, 6th, 7th and 8th appellants were convicted as charged D and the 3rd appellant was convicted for being an accessory after the fact of robbery. The alleged robbery took place at night. All appealed against conviction and sentence. There were two issues to be determinal before the High Court. First, whether the appellant, except the 3rd, were properly identified at the scene of crime. Second, E whether it was proper to convict the 3rd appellant for being an accessory after the fact of robbery.
Held: (i) Where the conditions for identification are unfavourable corroboration is F necessary;
(ii) the evidence of identification, except for that against the 2nd appellant, was very unreliable in the circumstance of first case and no conviction could stand without corroboration;
(iii) the conviction of the 3rd appellant for being an accessory to the fact of G robbery was wrong as the offence though minor,was not cognate to it.
Case Information
Order accordingly.
Kinabo, for the appellants H
Kimomogoro, State Attorney, for the Republic
[zJDz]Judgment
Chua, J.: Seven appellants namely (1) Nahum Salieya Mbise (2) Antony Yohana Juma (3) Stanslaus Erneo Furushi (4) Mohamed Bakari Faraji (5) Jumanne Bakari Faraji (6) I Idi Nangu Kitundu and (7) Isack Simon Kiteyo were found guilty in different offences and

sentence as follows: All the appellants except the 3rd one were found guilty of robbery A with violence and sentenced to seven years imprisonment; the third appellant was found guilty of being an accessory after the fact of robbery and sentenced to 7 years imprisonment. The convictions are being contested in this appeal.
There was unchallenged evidence from Naftali Mayombo (PW l) and Mohamed B Ibrahim (PW 2) that on 7/6/88 at about 9.30 p.m. bandits raided Lamshuku Mining Camp and in the

process broke into several homes stole properties and injured several people. It was further proved that the night in question was dark and that some of the bandits who carried guns had put on military combat fatigues with camouflage. The issue C at the trial was whether the appellants were identified as being members of the gang.

According to Naftali Mayombo while he slept he heard gun shots and people shouting. Then suddenly the door of his house was forced open. He stated further that the lst, 2nd, D 4th, 5th, 6th and 7th accused entered. How was he able to identify these people? He went on to say that the lst accused was holding a torch whose light he directed on a bed. A little later, the witness stated that he identified the lst, 2nd and 4th accused by voice for he had worked with them. For the 5th, 6th and 7th accused he said that he identified E them when they went to the store. He does not reveal whether there was any light at that store.

He did not state whether these persons had put on any hats or caps to disguise their appearances. Be that as it may, the impression conveyed by PW 1 was that he was not F absolutely certain of what he stated in court for by first stating that he identified the lst, 2nd and 4th accused by voice and a bit later stating that they wore military dresses he was thereby contradicting himself. One would have expected the witness to say that he identified these people by their appearance if he saw them and knew them before that G day and not by their voices which is an unreliable means of identification.

The second identifying witness stated that when bandits broke into his house he saw the 2nd and 7th accused enter. He stated further that he had worked with the 2nd accused for one year and that the second accused talked to him telling him that they were H relatives and that he should show them where he had kept gemstones. As for the 7th accused he states that he had seen him at Mbuguni though he did not specify in connection with what business he had seen him. The witness had stated that right from the beginning of the episode he had dived under his bed. He nevertheless asserted that I the 3rd, 4th, 5th and 6th accused were outside without explaining

whether he went out of the house and if he did so whether there was any light out there A for the night was said to have been dark.

In respect of the first accused PW 2 stated that he did not see him that night while for the 3rd accused he deposed that on the l0/6/l988 he heard him tell one person called Tall and other culprits to run away lest they be arrested by the police. B

When FW2 was being cross examined he stated that the 2nd accused had entered his house while light was on but he did not describe what type of light was on. The importance of describing the type of light was vital in a case which depended almost solely on visual identification. C

The case also had another limb of evidence that could have been used to corroborate the evidence of identification if it had been properly handled. PW 1 in his evidence had stated that he heard a car leave the scene of crime and on peeping through a window D noted that it was a

white pick up. He did not however note its registration number. Thus the evidence of Detective Corporal Kitimba (PW 4)
that upon receiving information that there was a white pick up with registration Nos. UF 440 hidden at Tengeru, that he went there and seazed it, that the 1st accused went to claim the vehicle on behalf of the registered owner one Peter Kamawathi, did not add E any weight to the prosecution case for the vehicle was not proved to have been the very one that was seen leaving the scene of crime.
There was evidence that the first accused on being arrested had set up an alibi claiming to have been in Nairobi at the time the crime was committed. The prosecution through F PW4 and PW5 purported to disprove the alibi by producing an emergency pass of the accused and showed that there was no stamp showing when he had last entered Tanzania. Furthermore records held by Immigration Officials at Namanga did not reflect an entry shown on the pass purporting to show that the first accused had travelled to G Kenya on the 1/6/88. But as conceded by Lucas Mponda (PW.5) it was possible that some stamps on the pass had faded away in which case he could not positively assert whether the first accused had not travelled to Kenya after the last date appearing on the pass which was the 29/2/88. That being the case the evidence had fallen short of H negating the alibi the accused had set up.
Learned State Attorney Mr. Kimomogoro declined to support the convictions because of the unsatisfactory evidence of the identification. He stated further that the mere fact I that the witnesses pointed out some of the accused persons in court did not add any weight because they knew them before the day of the offence.
1989 TLR p137
CHUA J
I have carefully weighed the evidence that was adduced and the arguments that have A been levelled against the conviction and have to say the following in respect of the accused persons. In respect of the accused that were known to PW. 1 and PW.2 it is to be expected that they would have themselves to avoid being easily identified. PW.1 in fact said that he had known the 1st, 2nd and 4th accused persons because he had B worked with them and identified them by their voices. Later in his evidence he said that they wore military combat fatigues with camouflage. But PW.2 in his evidence said that he did not see the first accused person. Thus there was no evidence to corroborate that of PW.1 on his having identified the first accused person. C
There having been no other evidence to corroborate that of PW.1 the first accused was not properly convicted. In this respect the attention of the learned trial magistrate is drawn to the need for corroboration in cases where identification of the accused is done D in difficult circumstances such as those which prevailed in this case. The famous case of Abdallah Wendo v R. (1953) 20 EACA 166 is relevant.
In respect of the second accused PW.1 said that he had worked with him and knew him well. PW.2 also said that he knew the 2nd accused having worked with him for one E year. PW.2 further stated that the second had talked to him telling him that in fact he was his relative. Though the circumstances were not conducive to easy identification the fact that the witness

knew the second accused well, a fact which was not contradicted, F removed the possibility of mistaken identity. The second accused having elected not to say anything for his defence, and the evidence of PW.1 having been corroborated by that of PW.2 it is my view that the conviction against the second accused was properly entered.

As regards the 3rd accused he was convicted of being an accessory after the fact of G robbery. This conviction was challenged on the ground that the evidence that was relied on to convict him was that he was heard to have warned two persons namely, Nathaniel and Kaburu to run away to avoid being arrested by the police, but that the two persons were not charged with the offence of robbery and therefore one cannot be an accessory H to an offence that has not been proved.

Learned State Attorney declined to support the conviction agreeing with the observation of learned defence counsel and went on to add that in law the learned trial magistrate I was wrong to substitute a conviction of being an accessory after the fact of robbery

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CHUA J

with violence because the offence of being an accessory though minor to the offence of A robbery with violence is not cognate to it. The case of Andrea Nicodemu v R. [1969] HCD 25 was cited.

I have perused the case of Andrea Nicodemu v R. and agree entirely with the observations of the learned state attorney. A minor and cognate offence which can be B substituted for the offence charged must be one which can be arrived at by a process of subtracting some of the ingredients of the main offence.

It is quite clear to me that being an accessory after the fact to the offence of robbery with violence cannot be arrived at by a process of subtracting some ingredients from those C that constitute robbery with violence. The conviction in respect of the 3rd accused was therefore contrary to well established principles of law.

As regards the 4th, 5th and 6th accused persons it is noted that whereas PW.1 stated that he identified the 4th accused by voice and that he had seen him wearing military D combat fatigues with camouflage PW.2 stated that he the accused No. 4 was outside the other. There was no description of how he was able to see him outside while it was a dark night. The evidence of PW.1 was therefore not corroborated by credible evidence. That being the case the conviction against him cannot be supported. E

In respect of the 5th and 6th accused PW.1 stated that he saw them carrying boxes. There was no mention of how he identified them i.e. whether he knew them before that day or the dresses they put on or some other aspect which would dispel fears that he F could have made an honest but mistaken identification. PW.2 on his part merely said they were outside without any description whatsoever whether he went out and how he saw them in darkness. The conviction was therefore not properly entered for there was no credible evidence to corroborate that of PW.1. G

Finally in respect of the 7th accused PW.1 stated that he was one of the persons carrying the stolen goods. But he did not say how he recognized him for he did not say whether he had

known him before that day and what dress he put on. PW.2 on his part said that he had met the 7th accused at Mbuguni but he did not elaborate in connection H with what business he had met him to dispel any fears that he could have mistaken him. The absence of a description of the appearance of the 7th accused contributed further to fears that the identification of the 7th accused was not absolutely water tight as is required in cases where the evidence relied or is entirely that of identification. In this I regard the case of Eria Sebwato is relevant.

1989 TLR p139

CHUA J

Before I leave this case I must comment on the manner the learned trial magistrate A handled the defence case. It is noted in the record that after the submissions of counsel the first accused stated that he wanted to call witnesses for his defence though all the accused except the 3rd accused had earlier on stated that they had no witnesses to call.

The learned Resident Magistrate stated: B

I am sorry defence case is closed and I wonder why your advocate never mentioned this before. What he stated was only that you will remain silent and ask for submission date. There C is nothing this court can do at this state.

In my view before writing judgment the learned trial magistrate could have entertained the application of the accused which reflected that he probably had not been happy with D the manner the defence case had been conducted. By saying that there was nothing she could do the learned trial magistrate had abandoned her duty to ensure that a fair hearing had been given to all the parties. Magistrates and judges have a duty of ensuring that even defended accused get a fair hearing. E

In the final analysis I quash the conviction entered against the 1st, 3rd, 4th, 5th, 6th and 7th accused and set aside the sentences. They should be set free unless they are otherwise legally detained. The appeal in respect of the 2nd accused Antony Yohana Juma is dismissed entirely. F

Judgment delivered in the presence of Mr. Mwidunda, State Attorney. Mr. Kinabo who is notified but is busy in Session cases to be notified about the outcome of this appeal.

G Order accordingly.

1989 TLR p140

A

[zRPz]ISRAEL SOLOMON KIVUYO v WAYANI LANGOI AND NAISHOOKI WAYANI 1989 TLR 140 (CA)

Court Court of Appeal of Tanzania- Dar Es Salaam

Judge Nyalali CJ

12 August, 1989 B

Flynote

Court of Appeal Rules - Application for stay of execution before notice of appeal is filed - Limitation period for filing the application - Interlocutory application only entertained relating to legal action or step pending in court - Definition of interlocutory proceeding. C

-Headnote

In an application for stay of execution of the decree of the Court of Appeal, the Chief Justice found that the application was based on the intention of the application to appeal D as no notice of appeal had been filed, that the application was of an interlocutory nature as it related to discovery and inspection and had been filed out of time. He accordingly declared the application incompetent and dismissed it with costs.

Held: (i) In the case of an application for stay of execution of a decree pending an E appeal where no notice of appeal has been given, the application will not be entertained;

(ii) an application under written law for which no period of limitation is provided under the Limitation Act, 1971 or any other written law has to be made within a period of sixty days; F

(iii) it is trite law that an interlocutory application for discovery or inspection cannot be entertained unless it relates to a legal action or step pending in court;

(iv) an interlocutory proceeding is incidental to the principal object of the action, G namely, the judgment. Thus interlocutory applications in an action include all steps taken for the purpose of assisting either party in the prosecution of their cases, whether before or after judgment; or of protecting or otherwise dealing with the subject matter of the action before the rights of the parties are finally determined; or of executing the H judgment when obtained.

Case Information

Order accordingly.

Lamwai, for the applicant

D'Souza, for the respondent. I

1989 TLR p141

NYALALI CJ

[zJDz]Judgment

Nyalali, C.J.: This is an application by notice of motion filed by the Applicant, that is, A Israel Solomon Kivuyo under the provisions of rule 3 sub-rule 1 and 2 of the Tanzania Court of Appeal Rules 1979, under which he seeks stay of execution of the decree of this Court given in Civil Appeal No. 16 of 1988. The judgment from which the decree flows is dated 24th December, 1988 and the decree was settled under the provisions of B rule 39 sub-rule 2 on the 16th May, 1989. The application is supported by affidavit which lists various matters upon which it is based. The crucial matters in this affidavit are to the effect that the record of appeal in Civil Appeal No. 16 of 1988 contains certain C omissions which were deliberately not rectified by Counsel who represented the applicant at the hearing of the appeal, thereby misleading the Court into giving judgment against the applicant. Dr. Lamwai, a junior but very able member of the Bar, represents the Applicant and has appeared before me by special permission according to the D practice of the Court. Mr. D'Souza, a senior member of the Bar, represents the Respondents. When this application came before me on the 24th July, 1989 a preliminary matter arose and

invited submissions in respect of it from both sides. The question is whether this application can be entertained by this Court. As already stated, E the application seeks stay of execution of the decree of this court. This basis for stay is contained in paragraph 8 of the affidavit filed in support of the application. That paragraph reads: "... I am intending to make an application for the comparison of the hand written Court record with the record of appeal and necessary orders to meet the end of justice". F

Undoubtedly, the relevant provisions for making an application for stay of execution of a decree of this Court is sub-rule 2 of rule 3 of the Rules of this Court. This is so because, there is no other provision governing the matter either under the rules or any other G written law. But can an application for stay of execution be entertained by this Court where the basis for such stay is merely the state of mind of the Court to take certain steps? I don't think that it is proper for any Court to grant stay of execution of a decree before the applicant has taken legal action to move the Court in a direction affecting the H decree. Thus in the case of an application for stay of execution of a decree. Thus in the case of an application for stay of execution of a decree pending an appeal where no notice of appeal has been given, the application will not be entertained. This is the Rule in the case of Nganga v Kimani [1969] E.A. page 67 where the High Court of Kenya I restated the rule. In my view that

rule is sound and correct in this country as well. It follows therefore, that this application A for stay of execution of the decree of this Court cannot be entertained unless and until the intended application mentioned in paragraph 8 of the above mentioned affidavit is filed in this Court.

In the course of the hearing of this application, Dr. Lamwai requested this Court to allow B him to file the intended application. Mr. D'Souza, learned Advocate for the Respondents countered such move by submitting that the intended application is already time barred. I agree with this submission since under item 21 of part III of the First C Schedule to the Law of Limitation Act, 1971, an application under a written law for which no period of limitation is provided under the Limitation Act, 1971 or any other written law has to be made within a period of sixty days. The judgment in Civil Appeal No. 16 of 1988 was delivered to the parties early this year, and the decree was settled D in terms of rule 39 sub-rule 2 on 6th May, 1989.

It is obvious that by the 24th July, 1989 when the parties appeared before me for the hearing of this matter, more than 60 days had expired from the time when the intended E application could be made - that is after the delivery of the judgment against the applicant. Dr. Lamwai's contention that the intended application had to await settlement of the decree and the subsequent execution proceedings is untenable in the light of the nature of the grievance made manifest in paragraph 9 which reads: "Further, that I verily F believe that had the record of appeal been accurate, the outcome of the appeal would have been different". Since the outcome of the appeal is in the judgment, the intended application could be made as soon as the judgment was delivered to the parties.

Furthermore, I am satisfied that the intended application is incompetent in law. I say so G because, the intended application is in the nature of an interlocutory application for the

discovery or inspection of certain facts required to facilitate a course of legal action. It is trite law that an interlocutory application for discovery or inspection cannot be H entertained unless it relates to a legal action or step pending in Court. In the present case, the application has not yet instituted a legal action or step for the purpose of which discovery or inspection may be ordered by this Court. Let us see whether the intended application can be construed as an interlocutory application within the scope of Civil I Appeal No. 16 of 1988. According to Jowitt's Dictionary of English Law, 2nd Edition at page 999 an interlocutory "proceeding ... is incidental to the principal object of

1989 TLR p143

the action, namely, the judgment. Thus interlocutory applications in an action include all A steps taken for the purpose of assisting either party in the prosecution of his case, whether before or after final judgment; or of protecting or otherwise dealing with the subject matter of the action before the rights of the parties are finally determined, or of executing the judgment when obtained. Such are applications for time to take a step e.g. B to deliver a pleading, for discovery, for an interim injuction, for appointment of a receiver, for obtaining a garnishee order, etc. So an order giving a plaintiff leave to sign judgment is interlocutory, because he must sign judgment before he can issue execution ..." C

In the light of this exposition, it is clear that the intended application for comparison of the Court records with a view to discover the alleged omissions cannot be construed to be incidental to the judgment in Civil Appeal No. 16 of 1988, as it does not directly flow or arise from that judgment. On the basis of the affidavit above mentioned, it flows or D arises from something extraneous to the judgment - that is, the alleged misconduct of the advocate who represented the applicant at the hearing of the appeal. Such alleged misconduct of the applicant's advocate cannot in law be a basis for the intended E application. It can be a basis for instituting a suit by the applicant against that advocate.

In the final analysis therefore, I am satisfied that the present application for stay of execution of the decree of this Court is incompetent and I am bound to dismiss it and I do so now with costs. F

Order accordingly.

1989 TLR p143

G

[zRPz]KISINZA RICHARD v REPUBLIC 1989 TLR 143 (HC)

Court High Court of Tanzania- Tabora
Judge Korosso J

26 August, 1989 H

Flynote

Criminal Law - Mistaken identification.

Evidence - Standard of proof - Evidence should leave no doubt.

-Headnote
The appellants were charged and convicted of burglary c/s 295 and stealing c/s 265 both of the Penal Code. Each was sentenced to 5 years imprisonment for the second I count. The appellants appealed
1989 TLR p144
KOROSSO J
to the High Court challenging the findings of the trial magistrate as having been based on A mistaken identification.
Held: These appeals have no substantial cause justifying this court to disturb the conviction rightly made.
Case Information
Appeal dismissed. B
No cases referred to.
[zJDz]Judgment
Korosso, J.: These two appeals Nos. 131/87 and 132/87 have been consolidated and C will conveniently be dealt with collectively. The Appellants were jointly charged with two offences. In the lst Count they were charged with the offence of burglary c/s.294 (1) of the Penal Code. The Appellants were convicted of both counts and each sentenced to 5 D years imprisonment for the 2nd Count. The Appellants are appealing to this Court against convictions and sentences.
Mr. Oswald the learned state attorney who appeared for the Republic supported the convictions registered against the Appellants. E
The Appellants challenged the finding of the learned trial magistrate as having been based on mistaken identification.
The evidence on the lower Court's record was such as to leave no doubts in the mind of the trial magistrate as to the identification of the Appellants by one Mbula Mayege F (PW.1) one Madulu Shibi (PW.2) and one Devota Magembe (PW.3). There was a lamp light illuminating the house. In the case of Devota Magembe (PW.3) she had been awake at 11.15 p.m. on 17/8/86 when the Appellants broke into the house. In the case G of the 1st Appellant was taking a lamp then burning in the house. All these witnesses, PW.1, PW.2 and PW.3 knew the Appellants thoroughly before the incidence having been a resident of the village of Matalambuli. It is in evidence that when the villagers went to the scene, PW.1, PW.2 and PW.3 not only mentioned the Appellants but also H by their names and the clothes they had put on, so that when the Appellants appeared at the scene feigning as good samaritans were promptly arrested, there and then.
I am satisfied that these appeals have no any substantial cause for complainant, justifying I this Court to disturb the convictions rightly made.
1989 TLR p145
I would therefore uphold the convictions and confirm the sentences of 5 years each. A
Appeal dismissed.
1989 TLR p145
B

[zRPz]ABUBAKAR MOHAMED MLENDA v JUMA MFAUME 1989 TLR 145 (HC)

Court High Court of Tanzania- Dar Es Salaam
Judge Nchalla J

29 August, 1989 C
Flynote
Civil Practice and Procedure - Transfer of cases - From Primary Court to District Court - Whether wish to engage advocate is a sufficient cause.
Civil Practice and Procedure - Chamber summons - Effects of citing wrong provision of law D in chamber summons.
-Headnote
The Applicant applied for leave of the High Court to transfer a suit already filed in Primary Court to the District Court on the single ground that the Applicant based on E section 63(1) of the Magistrates' Courts Act No. 2 of 1984.
Held: (i) It was improper to base the application on section 63(1) of the Magistrates' Courts Act 1984 above. This application should have been filed under both sections 63(1) and 47(1)(c); F

(ii) omission to cite a proper provision of law in chamber summons is not fatal to the application;

(iii) wish and ability to engage an advocate alone does not amount to good and sufficient cause to grant an application to transfer a case from Primary Court to any other court. G
Case Information
Application dismissed.
Rahim, for the applicant.
Kisusi, for the respondent. H
[zJDz]Judgment
Nchalla, J.: Mr. Rahim, learned advocate, acting for the appellant had filed this application for an order and leave of the High Court to transfer a case from the Primary Court to the District Court. The case for which leave and order of this court is sought to I transfer it to the District Court has already been registered at
1989 TLR p146
NCHALLA J
Magomeni Primary Court, Kinondoni District. Mr. Rahim has sworn an affidavit in A support of his application. In his affidavit Mr. Rahim avers only one ground to back up his application, namely that he wishes to represent the applicant in the case in question in which the applicant has been sued by the respondent in this application. Mr. Rahim has B brought up this application under s.63 (1) of the Magistrates' Courts Act No. 2 of 1984. At the hearing of this application Mr. Rahim relied on the single ground averred in his affidavit.
In reply, Mr. Kisusi objected to the application stating that the same is misconceived. He C submitted that s.63(1)MCA, 84 is irrelevant for purposes of the applicant's application who is

seeking for transfer of proceedings already instituted in a Primary Court. He pointed out that the relevant provision of law applicable to this application is section 47(1)(c) of the MCA, 1984. And the reasons for which transfer of a case from a D Primary Court can be made are enlisted under that section and no other. The reason that the defendant wishes to be represented by an advocate is not one of the reasons envisaged by s.47(1)(c)(i-iv) for which transfer of a case from a Primary Court can be made. Mr. Kisusi submitted that transfer of the case in question cannot be exercised E under section 47(1)(c) of the MCA because the subject matter of the case is land held under customary law. The matter has invariably to commence in a Primary Court in view of s.63(1) of the MCA, 1984. And if leave of the High Court is sought that the matter F commence in a court other than a Primary Court, then it is only the plaintiff, not the defendant who has the right to seek for such leave. He submitted that on the A contrary the defendant is applying for such leave when the plaintiff is against such leave being given. So, Mr Kisuri urged, the application, in whichever way you tilt it, appears to be G askew, and is misconceived. He prayed that the application be dismissed with costs, and that the case already instituted in the Primary Court proceed to hearing and determination therein.

At last Mr. Rahim conceded that he had preferred this application under the wrong section of the relevant law. He admitted that the proper section should have been H s.47(1)(c)MC Act, 1984 as pointed out by Mr. Kisusi. However, Mr. Rahim submitted that the omission is not fatal to the application as the substance thereof remains the same. I agree that the mere omission by a party to indicate the appropriate section of the law under which the matter is preferred is curable, particularly so where the omission, as in I this case is inadvertent, that is, not intentional or negligent. But I would

add that on the circumstances of this application, it was incumbent that the application be A preferred both under section 47(1)(c) and 63(1)of the Magistrates' Courts Act, 1984. This is so because the case in point has already been instituted in the Primary Court. So, the direct act is transfer of that case from the Primary Court to the District Court. Transfer of cases generally are dealt with under section 47 of the Magistrates' Courts B Act, 1984. But the transfer of the instant case which is about immovable property held under customary law cannot be had under s. 47 alone in view of the express provisions of s.47(1)(c) proviso (a)(b). So, recourse must be had to s.63(1) Magistrates' Courts Act, 1984 to be applied in conjunction with s.47(1)(c) to facilitate the intended transfer. C This is the only way out as I see it. But as I have already found, the omission by Mr. Rahim to indicate s.47(1)(c) in his chamber application is not fatal, as the substance of the application remains the same, and in no way has the respondent been embarrassed by the omission. D

Having reviewed the law and the submissions by counsel for both parties, I now consider whether this application is sustainable. Section 63(1) M.C. Act, 1984 does not lay specific conditions under which leave may be given by the High Court for proceedings to commence in a court other than a Primary Court. So, it appears leave E here is discretionary to the court. But it is well established law that where a right is to be exercised by a court on discretion, then the

same must be exercised judicially. Judicial exercise of discretion must be backed up by good cause. Is the mere fact that the defendant wishes to engage an advocate good and sufficient cause to grant the leave F applied for? After all the case has already been instituted in the Primary Court as Civil Case No. 84/1988. So, the immediate action sought is transfer of the proceedings already commenced in the Primary Court. This necessarily brings us to the dictates of s.47(1)(a)(b)(c)(i) (ii)(iii)(iv) of the Magistrates' Courts Act, 1984. The reason advanced G by Mr. Rahim in support of his application for transfer of the case from the Primary Court does not tally with any of the conditions set by the section. So, transfer of the case in question cannot be ordered under any of the provisions of s.47(1) Magistrates' Courts Act, 1984 since none of the conditions therein have been proved in favour of the H applicant. I am not also quite settled whether the mere fact that a party wishes to engage an advocate without any qualification will per se entitle a party to be granted leave to commence proceedings in another court which proceedings would otherwise have legally I commenced in a Primary Court. I am of the view that a party seeking for transfer of a case

from a Primary Court to a District Court or that proceedings commence in a court other A than a Primary Court should show good or sufficient reasons which are qualified and which the court will consider whether or not to grant the application. Mere financial ability to engage an advocate without any qualification therefor will not, I think, merit for grant of leave under s.63(1) or transfer under s.47 both of the Magistrates' Courts Act, 1984. B

In the circumstances, the order to transfer to or commence proceedings in the District Court applied by the applicant is refused.

C Application dismissed.

D

[zRPz]AHMAD SAIDI KIDEVU v SHARIFA SHAMTE 1989 TLR 148 (HC)

Court High Court of Tanzania - Mtwara
Judge Maina J

1 September, 1989

Flynote

Family Law - Compulsion to cohabitation - Application for an order to compel a spouse live E with an estranged spouse - Whether application entertainable.

-Headnote

In matrimonial proceedings before subordinate courts the appellant applied for an order that the respondent be compelled to live with him. The Primary Court dismissed the suit, F as did the District Court on first appeal.

The High Court on second appeal, found that the appellant's suit was misconceived and not maintainable in law and dismissed the appeal with costs. G

Held: When difficulties arise in a marriage, and one spouse decides to live separately from the other, the court cannot compel them to live together. Parliament, in its wisdom, enacted section 140 of the Law of Marriage Act, which clearly provides that a court H cannot compel one spouse to live with the other. The only remedy to a spouse who has been deserted is to commence divorce or separation proceedings.

Case Information

Appeal dismissed. I

No case referred to.

1989 TLR p149

MAINA J

[zJDz]Judgment

Maina, J.: This is a second appeal. The appellant, Ahmad Saidi Kidevu, filed a suit in A the Primary Court for an order that his wife, the respondent Sharifa Shamte, be compelled to live with the appellant. The suit was dismissed. The appellant's appeal to the District Court was dismissed, and he has now appealed to this court.

The parties were married in 1986 under Islamic law. They lived together at the wife's B house, and when they started quarrelling a few months later, they separated. They have been living separately since 1987. The respondent wife sued the appellant for maintenance after the appellant had issued one talaka. The wife has consistently refused to live with the appellant. As both lower courts found, the marriage between the parties C is in serious trouble, and it is unlikely that the marriage can be saved.

The question now is whether the court can compel the respondent wife to live with her husband. I must state straightaway that the appellant's suit is misconceived and not D maintainable in law, in view of section 140 of the Law of Marriage Act which provides a follows:

> No proceeding may be brought to compel a wife to live with her husband or a husband with E his wife, but it shall be competent for a spouse who had been deserted to refer the matter to a Board.

Marriage is a voluntary union of a man and a woman, and it is contracted with the F consent of the parties. It is intended that the marriage will last for their joint lives of the parties. However, when difficulties arise in a marriage, and one spouse decides to live separately from the other, the court cannot compel them to live together. Parliament, in its wisdom, enacted section 140 of the Law of Marriage Act, which clearly provides that G a court cannot compel one spouse to live with the other. The only remedy to a spouse who has been deserted is to commence divorce or separation proceedings.

In the present case, the respondent wife has refused to live with her husband, the appellant. The court cannot compel her to live with her husband. The appellant's remedy H now is to refer the matter to a Marriage Conciliatory Board, and then file divorce proceedings in a court of competent jurisdiction. The lower courts rightly refused to make an order compelling the respondent to live with the appellant.

I Appeal dismissed.

1989 TLR p150

A

[zRPz]DIRECTOR FOR PUBLIC PROSECUTIONS v EDWARD SUMARI 1989 TLR 150 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

6 September, 1989 B

Flynote

Criminal Practice and Procedure - Sentencing - Illegal sentence - Special reasons for imposing sentence - What amounts to special reasons.

-Headnote

This is an appeal by the DPP against sentence of 10,000/= fine or two years C imprisonment imposed on the respondent by a District Court Magistrate for causing death of one Joseph G. Kisanga through dangerous driving which is an offence under section 40(1) of the Road Traffic Act. The Respondent had admitted the facts that on D 21/11/1986 at about 11.30 am the respondent in an Isuzu Lorry No. TX 4652 drove his motor vehicle in the face of the deceased who was then riding his bicycle on his left and correct side of the road approaching from the opposite direction. Respondent's lorry knocked down and crushed the deceased who died instantly. From inspection of the E motor vehicle, the lorry's steering and footbrake were serviceable both before and after the accident. The respondent stated that his father died of shock when he heard of the accident and that he had dependants. When addressed in terms of section 27 of Road Traffic Act he stated that the accident occurred because the sudden and serious defect F on the steering but he failed to elaborate. Without more the District Magistrate found that there existed special circumstances in the case which called for leniency on the respondent. The magistrate also refrained from suspending the respondent's driving licence as well as disqualifying him from obtaining another one. G

Held: (i) The offence of causing death through dangerous driving carries with it a mandatory minimum of two years imprisonment with or without a fine unless there exists special reasons to warrant the imposition of a lesser penalty; H

(ii) special reasons under sec. 63(2)(a) of the Road Traffic Act, 1973 must be extraordinary facts peculiar to the offence or the offender. Ordinary mischief, or flagrant conduct by the accused at the material time, or ordinary antecedents will not amount to special reason peculiar to the offender; I

1989 TLR p151

SISYA J

(iii) special reasons must be advanced and the court must make a specific finding A thereon;

(iv) since the respondent failed as the law requires, to yield and give way to oncoming traffic including cyclists of whom the deceased was one while his footbrakes and steering were serviceable, there was a big element of deliberate risk taking on his part; B

(v) in the circumstances the sentence imposed by the trial magistrate is not only in err, but it is also illegal for being below the minimum prescribed by law.

Case Information

Appeal allowed. C

Cases referred to.

1. R. v Mkama Ndaro [1977] LRT n.12

[zJDz]Judgment

Sisya, J.: This appeal is by the Director of Public Prosecutions. He is appealing against D the sentence of shs.10,000/= fine or two years imprisonment in default of payment thereof imposed by the learned District Magistrate, Tanga, on the respondent. The latter was, on 25/11/86 and on his own plea, convicted for causing the death of one Joseph G. Kisanga through dangerous driving. This is an offence under section 40(1) of the Road E Traffic Act. The only ground of appeal advanced by the DPP is that the sentence meted out by the learned convicting magistrate is, under the circumstances of the case, manifestly inadequate.

In short, the admitted facts of the case are that on 21/11/86 at about 11.30 am the F accused was driving an Isuzu lorry bearing registration number TX 4652 along the Independence Street from the direction of Bombo Hospital towards the main Post Office. When he reached the intersection of the said Independence Street and the G Customs Street he turned right and drove towards the direction of Tanga Port. he did so in the face of the deceased who was then riding a bicycle on his, i.e. deceased, left and correct side of the road and who approached from the respondent's opposite direction, and without stopping in order to allow the deceased, who, incidentally, had the right of way, to pass. In the process the respondents lorry knocked down and crushed the H deceased, a form one student, who then died instantly. Going by the lorry's motor vehicle inspection report Exh.'D', the lorry's steering and foot brake were serviceable both before and after the accident.

In his address to the court before sentence, the respondent is recorded to have stated I that his father died of shock when news of

the accident reached him; that he has a sick mother, a wife and schooling children to A support; that was his first offence, that he had long service with the Agricultural Department; and that his monthly pay (which was not disclosed) was very low. Again, when addressed in terms of section 27 of the Road Traffic Act the respondent, this time, B stated that the accident occurred because the steering developed a sudden and serious defect. He did not elaborate what the alleged serious defect actually was. The motor vehicle inspection report, Exh.'D', however, tells the lie of the respondent's allegation on this aspect of the case. The respondent stated further that his speed was moderate at the time of the accident. C

In sentencing the respondent the learned District Magistrate was greatly influenced by the fact that the speed at which the respondent was driving at the time of the accident was not mentioned by the Prosecution. Without more the learned District Magistrate D found that there existed 'special circumstances' in the case which called for 'leniency' on the side of the

respondent. I interpret this to mean that the learned District Magistrate found that there were special reasons which warranted him to impose a sentence less than the minimum laid down by the law for that offence. The learned District Magistrate E also refrained from suspending the respondent's driving licence as well as disqualifying him from obtaining another one.

In arguing out this appeal before me the learned Senior State Attorney, Mr. Mwale, bitterly criticised the sentence which he said was manifestly inadequate. Mr. Mwale F argued further that the learned District Magistrate erred by failing to disqualify the respondent from holding a driving licence because no special reasons were advanced by him.

The offence of causing death through dangerous driving carries with it a mandatory G minimum of two years imprisonment, with or without a fine, unless there exist special reasons to warrant the imposition of a lesser penalty. In the case of Republic v Mkama Ndaro [1977] LRT n. 12 my learned brother, Katiti Ag.J. (as he then was) held, among other things, that 'what amounts to special reasons may be special facts which constitute H the offence and/or facts that are personal (-and I may add, and special) to the offender.' With this I, most respectfully, agree. Special reasons under section 63(2)(a) of the Road Traffic Act, 1973, must be extra ordinary facts peculiar to the offence or to the offender. A fact may be extraordinary and peculiar or special to the offence if, for I example, the accused committed the offence while rushing an expectant mother or an

accident victim to hospital for urgent management. Ordinary mischief or flagrant conduct A by the accused at the material time will not suffice to amount to a special reason. Likewise a fact may be extraordinary or special to the offender if, for example, it is established that the accused has a very long and unblemished driving record or having regard to the age and character of the accused it is inexpedient to inflict custodial B punishment. Ordinary antecedents such as having a family to support or if accused is a professional driver will, in my considered opinion, also not suffice as special reasons peculiar to the offender.

Special reasons must be advanced and the court must make a specific finding on the C same. In this instant matter the respondent was given opportunity to advance special reasons both before sentence and before making an order regarding the issues advanced by him before driving. With respect, none of the issues advanced by him before sentence amounts to a special reason. Instead the respondent dwelt on obvious and deliberate lies D in an attempt to explain why the accident happened. All that he said is now not viable as there is no appeal against conviction. The admitted facts, on the other hand, clearly show that the respondent was at fault. He simply did not stop or, at least, slow down at E a place where he was required by the law to yield and give way to oncoming traffic which includes cyclists of whom the deceased was one. Since he did so while his footbrakes and steering were serviceable and the deceased approached in front of him I find that there was a big element of deliberate risk taking on the respondent's part. I F repeat that there are no special reasons peculiar to the offence to warrant imposition of a lesser penalty. I, again, see none special to the offender, that is the respondent himself.

In the circumstances and on my part I find that the sentence imposed by the learned trial G magistrate does not only err on the lenient side but it is also illegal for being below the minimum prescribed by the law.
This appeal, therefore, has merit and it must succeed.
In the final result in addition to the fine which was paid the respondent is further and now sentence to two years imprisonment. H
Appeal allowed.
1989 TLR p154
A
[zRPz]ARUSHA INTERNATIONAL CONFERENCE CENTRE v DR. EDWARD CLEMENS 1989 TLR 154 (CA)

Court Court of Appeal of Tanzania- Arusha
Judge Kisanga JJA, Ramadhani JJA and Mfalila JJA

7 September, 1989 B
Flynote
Civil Practice and Procedure - Plaint - Relief sought - Plaint must show reliefs sought - Effect of non-compliance - O.VII Rule 7 Civil Procedure Code, 1966.
Labour Law - Gratuity - Condition for payment of gratuity. C
-Headnote
In the trial High Court in his statement of defence, the appellant (then defendant) pleaded that the suit filed by the respondent (then plaintiff) against him claiming damages for breach of contract of service should be dismissed as it did not show the reliefs sought by D the respondent. This, he submitted, offended the provisions of Order VII rule 7 of the Civil Procedure Code, 1966.
Held: (i) Where the plaint does not comply with the provisions of Order VII Rule 7 of E the Civil Procedure Code 1966 which requires every plaint to state specifically the reliefs which the plaintiff claims, the plaint will be considered to be defective unless amended before the conclusion of the proceedings and with leave of the court;
(ii) gratuity is only payable on successful completion of the contract period of employment. F
Case Information
Appeal allowed.
No cases referred to.
Kapoor, for appellant G
Kinabo, for respondent.
[zJDz]Judgment
Kisanga, Ramadhani and Mfalila, JJ.A.: The respondent Dr. Edward Clemens filed H a suit against the appellant - the Arusha International Conference Centre, his erstwhile employers

claiming damages for breach of a contract of service. The claim totalling shs.62,535/= was made up as follows:

(i) Gratuity I 24,629.00
(ii) Salaries for the unexpired

period of 12 months i.e. July, 1981 to June, A 198231,875.00
(iii) 3 months salary in lieu of notice 7,696.00
(iv) Leave pay 14 days 4,058.00
(v) Transport costs for family and personal effects for Arusha to Moshi B 4,000.00

The appellant denied the claim, stating that it lawfully terminated the contract of service C with the respondent in accordance with the terms of the contract something it was entitled to do. The
High Court after hearing evidence, held that there was a contract of service between the appellant and the respondent which the appellant terminated not only unlawfully but maliciously. Judgment was entered for the respondent as claimed minus the claim for 3 D months salary in lieu of notice. This the court found had already been paid by the appellant. The respondent was awarded a total of shs.54,565.50 in damages.
The appellant lodged this appeal, complaining in the first ground of appeal that the E learned trial judge erred in holding that the respondent had complied with the provisions of Order VII Rule 7 of the Civil Procedure Code 1966 in the pleadings. This complaint has a long history and it is as follows: Apart from the original record where the plaint bears some handwritten alterations, the rest of the records show paragraph 9 of the F plaint in the following terms:

(a) the cause of action arose at Arusha, thus within the jurisdiction of this honourable court. G

There was no prayer for any relief. Thus when the appellant filed the written statement of defence, he pleaded in paragraph 7 that the whole suit should be dismissed with costs as it does not show reliefs the plaintiff requires the court to grant him, and that this offended the provisions of O.VII R.7 of the Civil Procedure Code which provides: H

Every plaint shall state specifically the relief which the plaintiff claims either simply or in the alternative, and it shall not be necessary to ask for general or other relief which may always I

be given as the Court may think just to the same extent as if it had been asked for. A

And the same rule shall apply to any relief claimed by the defendant in his written statement of defence. B

There was no reply to this complaint up to the time both sides closed their respective cases. But in his submissions, Mr. Kapoor raised the point again stating that the provisions of O.VII Rule 7 are mandatory and since the plaintiff claimed no relief at all, C his claim must fail. He cited a commentary in the book by Mocha on the Law of Pleadings in India 11th Ed. dealing with an identical provision to our O.VII Rule 7. It is stated at page 247:

The relief sought should be accurately worded and it is risky to use loose or inartistic D language as there is always a danger of the Court throwing out the case, although Courts should not be too strict if it can be fairly inferred what the plaintiff really means - But whatever reliefs he claims must be stated in the plaint specifically as relief claimed in the plaint cannot be supplemented orally. E

The plaintiff omitting a relief will therefore have to make an application for amendment which cannot be allowed after limitation. Each relief should be clearly and separately stated and two or more reliefs should not be mixed together. F

In her judgment, the learned trial judge dealt with this point and resolved it in pleading of the respondent in the following words:

In paragraph 9 of the plaint the plaintiff prays for judgment for the sum of shs.62,535/= costs G and any other relief. I specifically spelt out paragraph 7 and 9 of the plaint in order to overrule the contention of the learned defence counsel in his submission that the suit should be struck out for offending the requirements of O.VII Rule 7. Paragraph 9 of the plaintiff specifically prays H for judgment in the sum of shs. 62,535/=, so the plaintiff has fulfilled the requirements of Order 7 Rule 7 of the 1966 Civil Procedure Code ...

This is the finding which is the subject of the attack in the first ground of appeal, a finding I which undoubtedly was influenced by the handwritten amendments to paragraph 9 of the plaint. With

the handwritten amendments, paragraph 9 on the original plaint reads as follows: A

(9)The cause of action arose at Arusha, thus within the jurisdiction of this honourable Court. Wherefor the plaintiff prays for judgment as follows: B

(i) Plaintiff claim for shs.62,535.00
(ii) Costs
(iii) Any other relief. C

On the face of it therefore paragraph (9) seems complete and makes the plaint comply fully with the requirements of O.VII Rule 7. But there are practical difficulties which unfortunately were not dealt with by the trial judge before making the above finding. It is quite clear that this amendment was made very much later in the proceedings, for if it had D been there from the beginning, the written statement of defence could not have contained paragraph 7, and it had contained paragraph 7, then counsel for the plaintiff would have corrected the impression

particularly when the prayer was for dismissal of the suit for non-compliance. The issue was raised again during the final submission, yet E again there was no response from the plaintiff.
At the hearing of this appeal, all Mr. Kinabo, Counsel for the respondent could say was that he does not remember what happened which made him make the handwritten F amendments. The position then is quite clear to us. The handwritten amendments were inserted either during or at the end of the hearing, there was therefore no reliefs claimed at the time the plaint was filed, at the close of the pleading and at the start of the hearing. There is nothing in the record to show that an application to amend the plaint was made G at any stage of the proceedings. The plaint was therefore amended without leave of the Court under O.VI rule 17 of the Civil Procedure Code. The result is that although the amendment embodying a prayer for reliefs is physically on the plaint, it is legally not there. We therefore upheld Mr. Kapoor's submission that the plaint did not comply with H the provision of O.VII Rule 7 and since there was no application to amend, the claim could not be maintained in the absence of reliefs sought by the plaintiff. Mr. Kinabo conceded that O.VII Rule 7 was in these circumstances not complied with, but he submitted that the consequences of this non-compliance would depend on the way the I plaint was framed. if the plaint is framed in such a way that the

other side could understand the nature of the claim, then the error is curable. He added A that in the present case the plaint is clear that the plaintiff was claiming specific damages amounting to shs.62,535/=, and asked this Court to cure the error under the provision of Rule 108 of the Court of Appeal Rules, 1979. But on our part we think that B the existence of a valid claim is a condition precedent for the use of the powers under Rule 108. In the present case there was no valid claim by reason of non-compliance with O.VII Rule 7.
Although this finding would have disposed of the appeal, we wish to consider the second C arm of the appeal raised in the Memorandum and argued by Mr. Kapoor at the hearing. It was contended that the learned trial judge erred in holding that the appellant had breached the contract of employment and that she ought to have held that the appellant was entitled to terminate the contract of employment in accordance with the D provisions of Clause 13(1) of the said contract. Mr. Kapoor contended that since the employment was lawfully terminated in accordance with the terms of the contract, the appellant is not liable in damages and the respondent is not entitled to any gratuity which is only payable on successful completion of the contract period of employment, in this case 24 months. E
On the other hand Mr. Kinabo argued that the relationship between the parties was regulated by an oral contract similar to the previous oral contract which ended on 30/6/80. He said that contrary to the appellant's allegation of the existence of a written F contract embodying Clause 13 under which either party could terminate the contract before the expiry of the contract period, there was no such written contract. There was only an oral contract similar to the previous contract under which the appellant could not terminate the contract of employment before the expiry of 24 months. he added that G since the appellant had not terminated the

respondent's employment at the end of the first contract on 30/6/80, he was not free to relieve him of his duties before the end of the 24 months contract period.

We thought this was a novel idea that a contract of employment oral or written could H bind the parties to the extent suggested by Mr. Kinabo. Indeed after it was decided not to employ the respondent on permanent and pensionable terms on account of his age, his previous employment was converted into a contract, a the same time a new contract was offered effective 1/7/80 (See Exh.P.2) and he was advised that the terms of the contract I would be communicated to him at a later date. This was done on 31/3/81

(See Ex.D.3). Although no written agreement was in fact signed by the parties, there A was nothing in the oral contract of the parties to suggest that the appellant could not terminate the oral contract in the way he did. This being the case we are satisfied that by giving the respondent three months salary in lieu of notice, the appellant lawfully terminated the contract of employment. We agree with Mr. Kapoor that the right to the B payment of gratuity, only arises at the end of the successful completion of the contract period of employment. The respondent has therefore no claim against the appellants.

For these reasons we allow the appeal and set aside the judgment and orders of the High Court. C

With regard to costs we order that each side shall bear its own costs here and in the Court below, because we are satisfied that the respondent was misled into believing that he had a valid claim. This belief was based on the Telex Message Exh.P.3 from the D Board Chairman directing the appellant to renew the respondent's contract. But before even replying to this directive the appellant terminated the contract.

E Appeal allowed.

1989 TLR p159

F

[zRPz]SIMON KILOWOKO v REPUBLIC 1989 TLR 159 (HC)

Court High Court of Tanzania- Mtwara
Judge Maina J

18 September, 1989

Flynote

Criminal Law - Theft - Admission - Admission of loss - Whether amounts to an admission of theft. G

-Headnote

In an appeal against conviction for theft the appellate judge found that the appellant had admitted that there may have been loss of money, but there was no sufficient proof that he stole the money. H

Held: Admission that there may have been loss does not amount to an admission to have stolen the money. The prosecution has to prove beyond reasonable doubt that the appellant committed the offence charged.

Case Information

Appeal allowed. I

1989 TLR p160

MAINA J

Boaz, for the respondent. A

No case referred to.

[zJDz]Judgment

Maina, J.: The appellant was a booking clerk employed by Bin Cleb Bus Service. His B duties included issuing tickets to passengers and receiving the money from the passengers. He was required to hand over his collections daily to the Branch Manager. It was alleged that the appellant had stolen some of the money so received, and for this, C he was convicted of stealing by servant. He was sentenced to two years imprisonment.

The prosecution evidence was briefly that the Branch Manager, PW1 Mohamed Issa, was receiving the money from the appellant for each day's sales of tickets. The witness said that he checked the tickets sold and the money remitted by the appellant on each D occasion. He believed that the appellant had given him the correct amount. But later when an auditor who is also the General Manager, PW3 Athumani Jawa, audited the books he found out that there was a difference of shs.49,110/= between the actual total sum received from sale of the tickets, and the sum which the appellant allegedly gave to E PW1 Mohamed Issa. The appellant is alleged to have admitted loss of the money and he promised to make a refund. He was escorted to an area of Songea Township called Bombambili to borrow money, but he escaped from the Police escort. He was rearrested later.

In his evidence, the appellant denied the charge. He said in effect that he had remitted all F his collections daily to his Branch Manager. He was not aware of any loss or shortage of the money he had received, until he saw the audit reports in the court. The appellant did not wish to call a witness. G

The learned resident magistrate was satisfied that the appellant gave less money to PW1 Mohamed Issa than what the appellant had actually collected. As Mr. Boaz, the learned State Attorney, submitted, this was a case in which there is the word of PW1 Mohamed Issa against that of the appellant on the actual sums which the appellant handed over to H the witness. There was no dispute that for that period between 28 October 1988 and 31 December, 1988 the appellant sold tickets worth shs.2,722,170/=. The amount which PW1 Mohamed Issa alleged was handed over to him by the appellant was shs.2,673,060/=. Clearly shs. 49,110/= remained unaccounted for. The question is, how I much did the appellant give to Mohamed Issa? Here, we have the work of Mohamed Issa against the word of

the appellant. It is surprising that Mohamed Issa did not require the appellant to sign for A the amount which he (the appellant) was handing over daily. The witness compiled his own list showing the sums of money he had received from the appellant. The lists, Exhibit P1 collectively, were prepared and signed by Mohamed Issa alone every three or five B days. The appellant did not sign anywhere in Exh.P1. His defence that he remitted correct amounts as shown in the duplicate copies of the tickets remained difficult to challenge. If he had remitted less than what he had actually collected from passengers, Mohamed Issa would have required him to sign for that. But Mohamed Issa said that he C did not discover he had received less than what was shown in the tickets.

What PW1 Mohamed Issa was telling the court in effect is that he received from the appellant money which appeared to be correct collections, and later he found out that it was not correct amounts according to the tickets. The appellant cannot be held D criminally responsible for theft of the money while he had remitted his collections together with the relevant books on daily basis. It was claimed that the appellant had promised to refund the money. But he did not at any time admit the theft. He admitted that there may have been loss as alleged, and suggested that this might be due to E carelessness in giving change to passengers. That does not meanhe admitted he stole the money. The learned State Attorney did not support the conviction and, with respect, I agree with him.

The prosecution did not prove beyond reasonable doubt that the appellant committed the offence charge. F

The appeal is allowed. The conviction which is not supported by the Republic is quashed and the sentence is set aside. The appellant should be released from custody forthwith unless he is otherwise lawfully held. G

Appeal allowed.

1989 TLR p162

A

[zRPz]BIBIE MAURIDI v MOHAMED IBRAHIMU 1989 TLR 162 (HC)

Court High Court of Tanzania- Mtwara

Judge Maina J

19 September 1989

Flynote

Islamic Law - Divorce - Issue of "talaka" - Whether it is evidence that marriage has B irreparably broken down.

Family Law - Division of matrimonial assets - Need for evidence of contribution - Whether performance of domestic duties amounts to such contribution. C

-Headnote

The parties were married under Islamic Law in 1979. In 1986 the respondent issued talaka in accordance with Islamic Law. Their dispute had been referred to a Marriage Conciliation Board

which certified that it had failed to reconcile the spouses and the D Primary Court granted a decree of divorce. On appeal to a District Court, at the instance of the husband it was held that there was no evidence that the marriage had broken down irreparably and the decree of divorce and the order of division of matrimonial assets was set aside. Appellant now appeals to High Court. E

Held: (i) The Principal District Magistrate had apparently overlooked the provisions of section 107(3) of the Law of Marriage Act 1971;

(ii) once the Marriage Conciliation Board has certified that it has failed to F reconcile the spouses, and a talaka has been issued, then the court has to find that the marriage has irreparably broken;

(iii) there must be evidence to show the extent of contribution before making an order for distribution of matrimonial assets;

(iv) performance of domestic duties amounts to contribution towards such acquisition but not necessarily 50%. G

Case Information

Appeal partly allowed.

[zJDz]Judgment

Maina, J.: The parties were married in 1979 under Islamic Law. They lived happily H together for a few years, and in 1986 the husband issued "talaka" in accordance with Islamic Law, dissolving the marriage. The matter had been referred to a Marriage Conciliatory Board which failed to reconcile the parties, and certified accordingly to the Primary Court. The wife petitioned for divorce. The Primary Court granted a decree of I divorce, and ordered division of matrimonial assets. On appeal, the District Court held that there

1989 TLR p163

MAINA J

was no evidence that the marriage had broken down irreparably. The decree of divorce A and the order for division of matrimonial assets were set aside. The wife now appeals.

Since the parties were married in Islamic form section 107(3) of the Law of Marriage Act is applicable. It states as follows:

Where it is proved to the satisfaction of the court that: B

(a) the parties were married in Islamic form, and

(b) a Board has certified that it had failed to reconcile the parties, and

(c) subsequent to the granting by the Board of a certificate that it had failed to reconcile the C parties, either of them has done any act or thing which would, but for the provisions of this Act, have dissolved the marriage in accordance with Islamic Law, the court shall make a finding that the marriage has irreparably broken down, and proceed to issue a D decree of divorce.

In this case, all the conditions set out above were complied with. The act of the husband issuing "talaka" had the effect of dissolving the marriage, and as the Board had certified E that it had failed to reconcile the parties, that was evidence that the marriage had irreparably broken down. The Primary Court quite properly made a finding accordingly, and issued a decree of divorce.

The learned principal district magistrate apparently overlooked the provisions of section 107(3) of the Law of Marriage Act. F

The decision by the District Court that the marriage still subsists is set aside, and the decision of the Primary Court issuing a decree of divorce is restored.

I now turn to consider division of matrimonial assets. The Primary Court made an order G that all the matrimonial assets be divided equally between the parties. But there was no evidence on the contribution by the wife towards the acquisition of the assets. It seems that the Primary Court acted on the assumption that because the assets were acquired during wedlock, the parties were entitled to divide them equally between H themselves. All that the wife contributed was by performing domestic duties, like cooking and looking after the house. She also assisted in supervising labourers who were constructing one of the houses. But the husband had provided all the funds for the purchase of the farms, household properties and construction of the houses. Section I 114(1) of the Law of Marriage Act gives powers to a court when granting, or

subsequent to the grant of divorce to order division of matrimonial assets acquired by the A parties during the subsistence of the marriage by their joint efforts. It is conceded that the duties performed by a wife to look after the house should be considered as her contribution towards the acquisition of matrimonial assets. But in deciding how much she B should get as her share when the marriage breaks down, one should consider section 114(2) of the Law of Marriage Act. Among the factors to be considered in deciding how much parties should get from the matrimonial assets when the marriage is dissolved are the extent of the contribution by C each party and debts owing as well as the customs of the community and needs of the infant children. There were no children to the marriage. There was, however, clear evidence that the wife's contribution was by her performance of domestic duties. Under the circumstances, she could not get half of the matrimonial assets. At the hearing of this D appeal, the husband informed the court, and the wife conceded that he had built a house worth shs.40,000/= for the wife in her village. That, I think, is sufficient share from the matrimonial assets in view of her contribution. She is not entitled to anything else. The order by the trial court giving the appellant half of the matrimonial assets is set aside. E

To sum up, the decision of the District Court is set aside. The decision of the Primary Court granting a decree of divorce is restored, and the order giving the wife half of the matrimonial assets is set aside. Each party shall bear his/her own costs. F

Order accordingly.

G

[zRPz]AGNES SEVERINI v MUSSA MDOE 1989 TLR 164 (CA)

Court Court of Appeal of Tanzania- Tanga

Judge Kisanga JJA, Omar JJA and Mnzavas JJA

22 September, 1989 H

Flynote

Civil Practice and Procedure - Appeals - To the Court fo Appeal - Case originating from Primary Court - A certificate on a point of law necessary. I

Civil Practice and Procedure - Assessors - Omission to take assessor's opinion - Effect.

1989 TLR p165

MAINA J

-Headnote

This was a third appeal arising from a suit filed in the Primary Court to recover a piece of A land. The appellant asserted that she bought the piece of land in 1966. In 1974 she took up the respondent as her boyfriend and they lived together, for one year after which they parted company and lived apart. In 1987 the respondent sold the disputed piece of B land claiming that he bought it from someone else. After the conclusion of the respondent's case only one assessor gave his opinion to the Primary Court Magistrate. The Primary Court gave judgment in favour of the respondent. The appellant's appeals to the District and High Courts were unsuccessful. As the appeal to the Court of Appeal was the third one it needed a certificate on a point of law by the High Court. C

Held: (i) The correct point of law to be determined by the Court of Appeal is the question of the constitution of the Primary Court at the time it decided the suit; D

(ii) the omission by the trial magistrate to take the opinion of the second assessor was fatal and it rendered the purported judgment null and void;

(iii) the judgment of the Primary Court is set aside and the judgments of the two appellate courts below necessarily crumble. E

Case Information

Order accordingly.

[zJDz]Judgment

Kisanga, Omar and Mnzavas, JJ.A.: This is a third appeal arising from a suit F brought in the Primary Court to recover a piece of land. The appellant, a woman, testified in the Primary Court that she bought the disputed land in 1966. In 1974 she took up the respondent as her boyfriend and they lived together for one year after which they parted company and lived apart. Then in 1987 the respondent sold the land in question claiming that it was his land which he had bought from someone else. The G Primary Court disallowed the appellant's claim. The appellant's appeal to the District Court was dismissed and further appeal to the High Court was equally unsuccessful. The present appeal to this Court is upon a certificate by the High Court that appoint of law is H involved in the decision, namely, whether the concurrent decisions of the courts below were supported and justified by the evidence. Both parties who were unrepresented each appeared and argued the appeal in person.

We wish to observe at the outset that this was an unsatisfactory way of certifying a point I of law. That certificate is capable of two

1989 TLR p166

KISANGA JJA, OMAR JJA AND MNZAVAS JJA

interpretations. It could mean posing the question whether there was any evidence at all A to support the concurrent decisions of the courts below. It could equally mean to ask the question whether the evidence as adduced was sufficient to support and justify those decisions. How, this distinction is imported. The question whether there was any B evidence at all to support the decision is a question of law which can properly be certified for the opinion of this court. But whether the evidence as adduced was sufficient to support the decision is a question of fact which could not properly be the subject of a certificate for the opinion of this court. For, this court takes the view that if there was C some evidence on which the courts below could have arrived at the decision they did, then this court will not interfere, even though had this court itself tried the case it might have come to a different decision. Those who are called upon to certify points of law should, therefore, keep this distinction in mind in order to ensure that only the correct D questions are certified for the opinion of this court.

The learned High Court judge who certified the point of law in this case found that the three courts below misconstrued or neglected altogether the evidence of the appellant's witness (PW.4). That witness had testified that in 1984 he, as an agricultural field E assistant, had allocated some of the appellant's land to some "wananchi" or villagers, and that before doing so he had to consult the appellant as the owner of the land. The learned judge criticised the trial court and the first and second appellate courts for wrongly understanding PW.4 as saying that he had allocated the disputed land to the F appellant in 1984. Thus the learned judge stated that had the three courts below taken the correct view of PW.4's evidence, he was in doubt if they would have come to the conclusion which they did.

It is pertinent to point out here that this criticism would be relevant only in relation to the G decisions of the first and second appellate courts. The District Court which heard the first appeal clearly fell into the error. That court took the mistaken view that PW.4 said that he had allocated the disputed land to the appellant in 1984. And the Principal H Resident Magistrate (Exercising Extended Jurisdiction) who heard the second appeal made reference to such mistaken view of the District Court without correcting it. But the Primary Court was under no mistaken view at all about PW.4's evidence. It did not give any impression at all that it understood PE/4 as saying that he had allocated any land to the appellant. I

So the true position really was that the first appellate court and, to some extent, the second appellate court, misdirected

themselves as to the evidence of PW.4. And the question which the learned judge meant A to certify for our opinion is whether those courts would still have come to the conclusions which they did, had they not so misdirected themselves. That is a question of law which could properly be certified for opinion by this Court.

In considering that question it has to be pointed out once again that the Primary Court in B arriving at its decision it did not rely on any mistaken view of PW.4's evidence. It proceeded on the correct view that according to PW.4 the appellant was in occupation of the suit land in 1984 when he allocated some of the appellant's land to the villagers. C So the Primary Court found

against the appellant not because it took any wrong view of PW.4's evidence; it arrived at that decision upon its unmistaken understanding and appreciation of the evidence before it.

The next question which we would have to decide is whether had the first and second D appellate courts properly directed themselves as to PW.4's evidence, they would still have come to the conclusion which they did. But having regard to the course which we have decided to adopt in this appeal it is no longer necessary to do so.

What we have dealt with so far was the only point of law specifically certified for the E opinion of this court. But the learned judge also reserved unspecified questions of law for the opinion of the court. Thus in this ruling he said:

> The applicant raises other grounds but, in view of the aforegoing I do not consider it necessary F to deal with them. How that it has been found that this is a fit case for consideration by the Court of Appeal I will leave the said grounds for consideration or otherwise by the Court of Appeal itself. G

With great respect to the learned judge he was wrong in so doing, in as much as it amounted to abdicating his responsibility in the matter. Once he had decided that other points of law existed, he was enjoined by law to go further and spell out clearly what H those points of law were. It was wrong for him to leave for the Court of Appeal to guess what those points were.

In her memorandum of appeal the appellant complained that the assessor Nathaniel Nungazija is a father-in-law of the respondent, and that she had requested the trial court I to have the assessor disqualified on that ground but her request was not heeded. That

complaint, however, is not borne out by the record. There is no endorsement by the trial A magistrate to that effect, and the appellant made no mention of it in her successive appeals to the District Court and the High Court. Indeed at the hearing of the appeal the respondent vehemently denied the allegation. thus as there was nothing to support the B appellant's allegation the same could not have been certified for the opinion of this court.

The memorandum of appeal also raised the complaint that only one of the two assessors in the Primary Court gave opinion in the case. This is fully supported by the record which C clearly shows that only the first assessor gave his opinion while the second assessor did not and was absent. This raises the question of constitution of the court which is a point of law that could properly have been certified to us. The omission by the second assessor to give his opinion contravened section 7 of the Magistrates' Courts Act which D provides that:

> (1) In every proceeding in the Primary Court, including a finding, the court shall sit with not less than two assessors. E
>
> (2) All matters in the Primary Court including a finding in any issue, the question of adjourning the hearing, an application for bail, a question of guilt or innocence of any F accused person, the determination of sentence, the assessment of any monetary award and all questions and issues whatsoever shall, in the event of difference between a magistrates and the assessors or any of them, be decided by the votes of the majority of the magistrates and assessors

present and in the event of an equality of G votes the magistrate shall have the casting vote in addition to his deliberative vote.

We think that it was mandatory for the second assessor to give his opinion on the final issue in the suit i.e. which party was successful and to what extent. The omission to do H so was necessarily fatal, and it rendered the purported decision null and void. That is to say there was no decision by a competent or properly constituted court. We think that the present appeal ought to succeed on that ground. Thus it should now be clear why earlier on in this judgment we decided not to go into the question whether the two I appellate courts below would have come to the same conclusion if they had

1989 TLR p169

KISANGA JJA, OMAR JJA AND MNZAVAS JJA

properly directed themselves as to the evidence of PW.4. It is apparent too that we had A to touch, although only in passing, on the purported judgment of the Primary Court simply for the purpose of ascertaining the actual point of law which the learned judge meant to certify for our opinion. It so happens also that this would appear to exhaust the B unspecified questions of law which were reserved for our opinion.

In the light of the foregoing, we set aside the purported judgment of the Primary Court. Needless to say the judgment of the first and second appellate courts necessarily crumble; they could not stand on what has been declared a nullity. C

The question as to what future course is to be taken in this matter has exercised our minds quite considerably. We are conscious of the time element involved in commencing a new trial, inconveniences to the parties and the problems of re-summoning the witnesses. In the course of hearing the appeal the respondent, for instance, informed us D that one of the witnesses who gave evidence at the trial is already dead. Thus in order to minimize inconveniences to the parties and delays in finalizing this matter, and in order to avoid further costs and possible problems connected with tracing or non-availability of E witness, we direct that the matter be remitted back to the Primary Court for action as follows: If the assessors Adam Hamisi and Nathaniel Mungazija are still alive and can be traced, then the Primary Court magistrate who tried the case with them should summon them, sum up the case to them afresh on the evidence as already recorded and then F proceed to decide the case in accordance with the provisions of section 7 of the Magistrates's Courts Act as reproduced earlier. Thereafter any party

who is aggrieved by that decision can appeal to the District Court in the usual manner. If the said assessors are dead or cannot be found, then the matter is to be tried de novo G before a different magistrate and upon the same court fees as have already been paid. It is further ordered that each party is to bear it own costs of this appeal.

H Order accordingly.

1989 TLR p170

A

[zRPz]SIMANGO KEHEGU v ATHANAS TARAYANI 1989 TLR 170 (HC)

Court High Court of Tanzania- Mwanza

Judge Mwalusanya J

29 September, 1989
Flynote
Constitution Law - Constitutional right - Right to the protection of property. B
-Headnote
In 1972 seven cattle belonging to the appellant were stolen. The respondent was a suspect. With the advent of Sungusungu in 1988 the appellant sent the respondent to the C sungusungu to be tried. The respondent was ordered to compensate the complainant (appellant) the seven head of cattle. However when the sungusungu were executing the attachment order they took ten head of cattle of which seven were handed to the D appellant while the remaining three were taken by sungusungu. The respondent successfully sued the appellant for the recovery of his ten head of cattle in the Primary Court. The appellant appealed to the District Court where the amount of cattle recoverable was reduced to seven (7). The appellant filed an appeal in the High Court. E
Held: (i) Under the Constitution of Tanzania only courts of law are empowered to try, convict and sentence offenders;

(ii) the traditional army did not have the powers to order compensation and the appellant having used an unlawful method for getting redress must take the responsibility F of refunding the seven head of cattle he was unlawfully compensated;

(iii) the respondent should have sued sungusungu to recover the remaining three head of cattle.

Case Information
Appeal dismissed. G
[zJDz]Judgment
Mwalusanya, J.: The appellant Simango s/o Kehengu was successfully sued at Noreme Primary Court in Serengeti District by the respondent Athanas s/o Tarayani in a H claim of ten head of cattle which had been unlawfully seized by the traditional army (Sungusungu or Baraza la Jadi) from the respondent and given to the appellant. The appellant appealed to Serengeti District Court and his appeal was partly successful in that he was ordered to refund only seven head of cattle instead of ten. Still aggrieved by I that decision, the appellant has now appealed to this court. At the hearing of this appeal, the appellant was represented by counsel Mr. Sandhu.
1989 TLR p171
MWALUSANYA J
What happened was that sometime in 1972 the appellant had his seven head of cattle A stolen. He suspected the respondent to be the thief. With the advent of Sungusungu in 1988 the appellant sent the respondent to the Sungusungu to be tried. It is said the respondent was tried and convicted by the Sungusungu and was ordered to compensate the complainant (the appellant) the seven head of cattle. However when the members of B the traditional army were executing the attachment, they attached ten head of cattle from the respondent. It is said only

seven head of cattle were handed over to the appellant while three head of cattle were 'pocketed' by the Sungusungu.
The trial court ordered the appellant to refund all the ten head of cattle to the C respondent. However the District Court held that appellant should refund only seven head of cattle which he had been given; and that respondent should have sued the Sungusungu for the three head of cattle which they had 'pocketed'. D
There can be no controversy that the Sungusungu are operating outside the Rule of Law. They have no power to try and convict offenders nor make compensation orders. Under our Constitution only the courts of law are empowered to try, convict and sentence offenders. Under Article 13(3) of the Constitution it is stated that: 'Rights of an individual and the community shall be protected by courts of law and other organs of the E government'. But the traditional army is neither a court of law nor an organ of the government with judicial powers. And Article 24 of the Constitution states that every individual has the right to the protection of his property; and that his property may only be taken from him when found liable by a court of law or when there is a legislation F allowing confiscation of somebody's property but which makes adequate compensation for the affected individual. Therefore it is crystal clear that the traditional army usurped the judicial power which it does not possess under our constitution. The judicial power is vested in the court of law only. So the conduct of the traditional army in this case was G patently unlawful. And the appellant having used an unlawful method for getting redress, must bear responsibility and refund the seven heads of cattle that he was unlawfully compensated. I agree with the learned Senior District Magistrate that the appellant is H only liable for seven heads of cattle which he was given. The respondent should have sued Sungusungu that had unlawfully pocketed the three head of cattle.
In the event this appeal fails and it is dismissed with costs. the appellant should refund the respondent only seven head of cattle.
I Order accordingly.
1989 TLR p172
A
[zRPz]KABUYA s/o ESSORE v MTURI NYEGERI 1989 TLR 172 (HC)

Court High Court of Tanzania- Mwanza
Judge Mwalusanya J

29 September, 1989
Flynote
Limitation Law - Limitation in customary law - No specific period of limitation specified -But B no unwarrantable delay is allowed.
Family Law - Inheritance - Inheritance of wife - Legal effect on children and property.
-Headnote

When the respondent's father died in 1951 the appellant inherited the wife of the C deceased. The respondent was born in 1951. The deceased's property was distributed to the children of the deceased by the clan council. Each wife was given a number of cattle to keep on behalf of her children. The respondent's mother was given nine head of D cattle and as she was inherited by the appellant, the said cattle were kept by the appellant. After some matrimonial conflicts the respondent's mother deserted the appellant. There was no dispute that the appellant received the nine head of cattle. In l987 the respondent sued the appellant for the recovery of the nine head of cattle which E he claimed were part of his inheritance in the Primary Court. Although the trial magistrate was of the view that the suit was time barred yet the majority gave judgment in favour of the respondent. The appellant was also unsuccessful in his appeal to the District Court. He appealed further to the High Court. F

Held: (i) Under the Customary Law (Limitation of Proceedings) Rules GN.No.311/1964 no specific period of limitation is laid down in the case of a claim of head of cattle but prudence requires that there should be no unwarrantable delay in G bringing such proceedings;

(ii) the question as to whether the delay is unwarrantable is a question of fact;

(iii) a delay of seventeen (17) years in this case was unwarrantable; H

(iv) when the appellant inherited the mother of the respondent she became his legal wife and the respondent became his legal son and so he (the respondent) had no separate property from that of his now legal father. I

Case Information

Appeal allowed.

1989 TLR p173

MWALUSANYA J

[zJDz]Judgment

Mwalusanya, J.: The respondent Mturi s/o Nyegeri successfully sued the appellant A Kabuya s/o Essore at Mugango Primary Court in Musoma District, in a claim of nine heads of cattle which were allegedly unlawfully withheld by the said appellant. The appellant appealed to Musoma District Court against the judgment of the trial court, but he again lost and hence this second appeal. B

The respondent testified that his father died in 1951 when his mother was pregnant. Soon after his father's death in 1951 he was born. His father left more than 80 head of cattle. The appellant is the uncle of the deceased father of the respondent and when the C respondent's father died, the appellant was asked to inherit the wife of the deceased, that is respondent's mother. Then the deceased's property was distributed to the children of the deceased by the clan council. Each wife was given a number of cattle to keep them on behalf of her children. The respondent's mother was given nine head of cattle D and as she was inherited by the appellant, the said cattle were kept by the appellant. After some matrimonial conflicts, the respondent's mother deserted the appellant. The appellant did not dispute at the trial that he received the nine heads of cattle, but he said he was given the cattle in his own right as a person who had inherited the deceased's E wife. He said that as the said wife has deserted him, then nor her nor her child (the respondent) has the right to the cattle in question.

The Primary Court Magistrate who was in the minority held that the suit was time-barred. He said that as the respondent was born in 1951, then he attained the age F of majority (21 years) in 1970 and so he should have filed this suit soon after 1970. He said that as the suit was filed in 1987 (17 years after the cause of action arise) then the suit was time-barred. However the gentleman assessors did not care about the law on the limitation period and held that the respondent was entitled to get the nine heads of G cattle. As the gentleman assessors were in the majority, they out-voted the Primary Court Magistrate and their view carried the day as the judgment of the Court.

Surprisingly the Principal District Magistrate did not discuss at all, as to whether the suit H was time-barred or not. That was wrong. This was a fit case to allude to that pertinent question. Under the Customary Law (Limitation of Proceedings) rule GN.No.311/1964, no specific period of limitation is laid down in a case of a claim of heads of cattle. But I rule 5 of the said Rules states:

1989 TLR p174

Where any proceeding is brought for the enforcement of a claim under customary law for A which no period of limitation is prescribed by these Rules, the court may reject the claim if it is of the opinion that there has been unwarrantable delay in bringing the proceedings and that B the just determination of the claim may have been prejudiced by that delay.

The question as to whether the delay is unwarrantable is a question of fact. In the case of Isoto v Isota: (1970) H.C.Dn.328 Mr. Justice Biron found that a delay of six years in C these type of claims was unwarrantable and rejected the claim. In the case at hand the delay was for some 17 years. No explanation has been given by the respondent for this delay. In my considered view the delay is quite inordinate, and therefore the trial court should have rejected the claim. The learned Primary Court Magistrate was right. D

Even on merits, I am of the considered view that the suit should have been dismissed. I agree with the appellant that he inherited the nine head of cattle on his right. When the appellant was installed by the clan council as the inheritor of the wife of the deceased, then the said wife and her child (respondent) became the legal wife and son of the E appellant respectively. In other words the respondent became the legal son of the appellant and so he had no separate property apart from that of his now legal father. He can claim the property of his new legal father (the appellant) when that father dies and he F can claim as a lawful heir to the deceased's estate of his

new legal father. But once the appellant still lives, he cannot claim anything from him. I think that logic makes sense.

In the event this appeal succeeds and it is allowed with costs.

Appeal allowed.

1989 TLR p174

G

[zRPz]ASIA IDDI v REPUBLIC 1989 TLR 174 (HC)

Court High Court of Tanzania- Dodoma

Judge Nchalla J

2 October, 1989 H
Flynote
Evidence - Confession - A confession by a co-accused - Whether can ground a conviction without corroboration.
Evidence - Corroboration - Evidence of persons who have their own interest to serve - I Whether can corroborate.
1989 TLR p175
NCHALLA J
-Headnote
The appellant was convicted on the strength of a co-accused's confession together with A independent testimony of witnesses who were in one way or another involved in the transaction. On appeal.
Held: (i) Conviction cannot be based solely on a confession by a co-accused. There B must be, in addition, other independent testimony to corroborate it;
(ii) evidence of a person who has an interest to serve also needs corroboration as such it cannot be used to corroborate other evidence. C
Obiter: The purposes of reading over a charge sheet to the accused are, inter alia, to allow the magistrate an opportunity to correct any errors apparent on the charge sheet lest they embarrass the accused person. D
Case Information
Rweyongeza, for the Appellant.
Ndunguru, for the Republic
[zJDz]Judgment
Nchalla, J.: The appellant Asia d/o Iddi was jointly charged in the District Court at E Kondoa with another person, Clemence s/o William, with the offence of stealing by servant c/ss. 270 and 265 of the Penal Code, Cap. 16. It is evident that it was an error for the Police to have referred to this kind of theft as "Stealing by Servant". The offence of theft by servant is under ss.271 and 265 of the Penal Code, and not under ss.270 and 265 of the Penal Code. The proper description of the offence in this case should F therefore have been "Stealing by person Employed in Public Service, or, briefly, stealing by person in public service". This error has not, however, occasioned a miscarriage of justice, as the proper sections of the law creating the offence were indicated in the G charge sheet and the particulars of the offence related to that offence. This error is therefore cured.
However, I observe that there are other irregularities in the charge sheet which call for comment and direction by this court on appeal. I will therefore reproduce the particulars of the offence as they appear in the charge sheet. Those particulars are the following:- H "That Asia d/o Iddi and Clemence s/o William jointly charged on 14th day of January, 1988 at about 19.00 hrs, at Kwapakacha Education Store, within Kondoa District, in Dodoma Region, being the

persons employed by the Ministry of Education as a store-keeper and a night-watchman respectively, did steal 1505 1600/= exercise I
1989 TLR p176
NCHALLA J
books worth shs.11,287/50, property of the Ministry of Education which came into their A possession by virtue of their employment."
As it clearly appears from the particulars of the offence reproduced above, the number of exercise books alleged to have been stolen was carelessly and haphazardly indicated B on the charge sheet. The figures 1505 1600/= exercise books are meaningless, and are subject of ambiguity with regard to the exact number of exercise books alleged to have been stolen by the accused. These figures denote an amount of cash, not an amount of things like exercise books. The figure 1505 was recorded by free hand, while the C figure 1600/= was type-written. This means the figure 1505 was not originally recorded in the charge sheet, and it is not explained who later inserted that figure in the charge sheet by free hand and with ink. Moreover, the value of the exercise books alleged to have been stolen was originally indicated in the charge sheet in type-writting thus - D 16,000/=, but, later, someone unknown crossed off that figure and inserted, instead, the figure 11,287/50 in free hand, and with ink. This careless handling and admission of charge sheets cannot pass without comment by this court. I wonder whether those particulars of the charge were read over and explained to the accused. For had the trial E magistrate done so, he could not have failed to spot those glaring errors and discrepancies, and should have immediately ordered the charge to be amended. It is only fortunate that the whole evidence on record related to 1505 exercise books having been stolen and their value consistently stated being shs.11,287/50. For this reason I am F inclined to believe that the accused were not embarrassed and confused by the errors relating to the number of exercise books alleged to have been stolen and their value.
Under the circumstances, I find that no miscarriage of justice was occasioned by the errors which the appellant did not even raise on appeal. For that reason the errors are G cured. However, these errors are deplored by this court on appeal, and I hereby direct that, in future, the trial magistrate should exercise diligence in ensuring that the charge sheet is properly laid out, and is free from such glaring errors which depict nothing else but negligence and sloppiness. H
Having made the above instructions and directions, I now turn to the gist of this appeal.
The appellant Asia, and her fellow accused, Clemence, were convicted of the offence of theft by public servant c/ss.270 and 265 of the Penal Code and were each sentenced to I five (5) years imprisonment under the Minimum Sentences Act, 1972. Asia was
1989 TLR p177
NCHALLA J
not satisfied with the decision of the District Court, and has appealed to this Court A against conviction only. The 2nd accused, Clemence, did not appeal.
The appellant was represented by Counsel both at the trial and on appeal. The same counsel, Mr. Rweyongeza, appeared for the appellant both in the District Court and on appeal. Mr. Nduguru,

State Attorney, appeared for the Republic in this appeal. Mr. B Ndunguru did not support the conviction that was entered on the appellant by the District Court. He therefore conceded to the appeal.

Mr. Rweyongeza argued the appeal. He submitted that the only evidence that implicated C the appellant with the offence is the co-accused's extra judicial statement which was made to a justice of the Peace, one Neugence Orio (PW.3). In his extra judicial statement the co-accused by the name of Clemence william confessed to have D participated in stealing the exercise books from the store at Kwapakacha. However, at the trial Clemence repudiated his confession. Mr. Rweyongeza submitted that at the trial Clemence, appellant's co-accused, made an exculpatory statement in relation to the commission of the offence. Mr. Rweyongeza argued that the exculpatory statement by E Clemence at the trial obliterated his former confession which he made before PW.3. The resultant effect is that there was no more any confession at all, but a more exculpatory statement or, at best, a repudiated statement which, as a matter of prudence, required corroboration. Mr. Rweyongeza submitted that an exculpatory statement by an accused F person implicating a co-accused cannot be acted upon to convict the other co-accused. To this end Mr. Rweyongeza cited the case of Ali Salehe Msutu v R. [1980] TLR (C.A.) at P 1. Mr. Rweyongeza submitted that even if appellant's co-accused had not repudiated his confession, still, the same ought to be corroborated G before the same can be used to convict the appellant. Mr. Rweyongeza cited the case of R. v Kusenta Cheligia & another [1978] LRT No. 11 where Mr. Justice Mnzavas (as he then was) held, inter-alia "where an accused person implicates himself with an offence, his statement that a co-accused participated in the commission of the offence H must be corroborated by other independent evidence pointing to the guilt of his co-accused." Mr. Rweyongeza submitted that there was no independent evidence on record to corroborate the repudiated confession made by Clemence, appellant's co-accused. Mr. Rweyongeza argued that the evidence of the Store Keeper, one I Magesa (PW.2) and that of the Education Officer Incharge of

1989 TLR p178

NCHALLA J

Supplies (PW.1) cannot be held to be corroboration to the confession in question. Mr. A Rweyongeza argued that PW.1 and PW.2 can either be imputed as accomplices or actual thieves of the exercise books in question. This is so because on 14/1/88 PW.2 went to the store at Kwapakacha and opened it. He was alone. He took exercise books B from that store, and transported them to Kwamtoro. It is not known how many exercise books he took, and how many he left in the store. PW.2 then handed over the keys of the said store to appellant. it is established that the appellant in turn handed those keys on the same day to PW.1 because appellant was sick. So, PW.1 could also have C had access to the store by opening its door and stealing exercise books there from. Equally PW.2 could have stolen those exercise books because he never handed over to appellant the store, or at least the exercise books the subject of the theft in this case. So, it cannot be proved conclusively under those circumstances that only the appellant could D open and steal the exercise books from the store in question. The store was not damaged anywhere. The theft was committed by opening the store door in the normal way.

So, any one among appellant, PW.1 and PW.2 could have committed the said theft. Moreover, it is not known exactly at what point in time the said theft was E committed. It was committed between 14/1/88 and 16/1/88 when the same was discovered. And during this time the store keys had changed hands from PW.2 to the appellant and to PW.1. There is so much doubt as to which persons among appellant, PW.1 and PW.2 opened the store door and stole the exercise books therefrom. in the F circumstances, Mr. Rweyongeza argued that PW.1 and PW.2 were persons with an interest of their own to serve in this matter, and as such, their evidence required corroboration. In this connection Mr. Rweyongeza cited the decision in Abraham Wilson Saiguran v R. [1981] TLR P.265.

Mr. Rweyongeza also made reference to the provisions of s.33 (1) (2) of the Tanzania G Evidence Act, 1967 which reads:

33 (1) When two or more persons are being tried jointly for the same offence or for different offences arising out of the same transaction, and a confession of the offence or H offences charged made by one of these persons affecting himself and some other of these persons is proved, the court may take that confession into consideration against that other person.

(2) Notwithstanding subsection (1), a conviction of an accused person shall not be based I solely on a confession by a co-

accused (underscoring is mine). Mr. Rweyongeza submitted that since no other A independent evidence is available to implicate the appellant with the charge, save for the co-accused's confession which contains exculpatory statements, and which is repudiated, then conviction cannot be sustained on the appellant based solely on B appellant's co-accused's confession.

Mr. Rweyongeza further submitted that Clemence, appellant's co-accused, is not a truthful person. He made three different statements all of which are contradictory. These C statements are his extra-judicial statement to the justice of the peace (Exh.B), his caution statement to police (Exh.D) and lastly his testimony in court. Each of these three statements has its own version, different from the other. Clemence did not complain anywhere that he was either tortured, threatened or induced into making those D statements. The only reasonable conclusion on that point is that Clemence, appellant's co-accused, is not a truthful person. Moreover, Clemence told the court on 17/8/88 during the trial that one Ally Hussein (DW.3) saw him (2nd accused) in appellant's company when Ally gave to 2nd accused the key to his house to go and see the exercise E books which had been hidden therein. But in his evidence Ally Hussein (DW.3) denied that he saw appellant in 2nd accused's company on 15/1/88 when he (Ally) gave him (2nd accused) the key to his house. Ally also denied that he knew the appellant. This evidence goes to show how incredible 2nd accused is. F

Having considered the evidence on record and the exhaustive submissions by Mr. Rweyongeza, counsel for the appellant, I am quite convinced that the appellant was wrongly convicted in this case. I quite agree with Mr. Rweyongeza that the only evidence that the court could have acted upon to convict the appellant with the charge is G the repudiated/retracted confession of the

2nd accused, Clemence, who is appellant's co-accused. The said confession required corroboration, particularly so bearing it in mind the fact that its maker has been shown to be an untruthful person. The only corroboration, if any, could be only found in the evidence of PW.1 and PW.2. But as H indicated above, the testimony of these two last mentioned witnesses also requires corroboration, as they are established to be persons who have an interest of their own to serve in the matter. The evidence of PW.1, PW.2 and the 2nd accused Clemence, I excepted, then there is no any other evidence on record to go by in order to justify a conviction on the appellant. The rest of

the evidence is merely shaky circumstantial evidence which is not incompatible with A appellant's innocence. There are so many gaps in the prosecution case which cast doubt as to appellant's guilt in this case. Apart from what has been demonstrated afore, one wonders why the ledger book in which the exercise books in question were recorded B was not produced in court. Without the said ledger, it cannot be proved what balance of exercise books there was in the store on 14/1/88 after PW.2 took some of them and transported them to Kwamtoro. The evidence adduced in court on this aspect is, with due respect, mere hear say, and the same is inadmissible. C

On the authorities cited here by Mr. Rweyongeza, the conviction and sentence entered and passed on the appellant cannot be left to stand. I quash the said conviction and set aside the sentence of 5 years term of imprisonment meted out to the appellant, Asia d/o Iddi. D

Before winding up my judgment, I wish only to point out to the victims of this offence, that is, the Ministry of Education and its agent, the Kondoa District Council. It appears that they have not realized that store is cash, just like bank notes or coins are. Its custody must be exercised under strict and established store procedure coupled with E Financial Procedure and Regulations. In financial Regulations applicable to government, store and hard cash are regulated in the same way. It is therefore surprising to note that the District Council at Kondoa deals with stores as if the same had no economic value, or as if the same were different from hard cash. Whoever is responsible for the F supervision of stores at Kondoa District council should revise his stores training and administration in order to avert similar unaccounted losses in future.

Having said this last remark, I direct that the appellant, Asia Iddi, be released from G prison forthwith, unless further detained for another lawful cause. The appeal is allowed in its entirety.

H Appeal allowed.

[zRPz]ABDU HASSAN v MOHAMED AHMED 1989 TLR 181 (HC)

Court High Court of Tanzania- Mwanza
Judge Katiti J

7 October, 1989

Flynote

Civil Practice and Procedure - Revision - Limitation to revisional powers - Section 79(1) Civil Procedure Code, 1966. B

-Headnote

The plaintiff filed a civil suit in Bunda District Court claiming shs. 280,460/00 being the value of diverse merchandise allegedly delivered to the respondent upon contract. The C district magistrate heard the suit and decided it. The resident magistrate, on noting the case, forwarded it with recommendations for revision to the High Court.

Held: (i) The High Court revisional powers under section 79(1) of the Civil Procedure D Code of 1966 are limited to cases where no appeal lies and issues such as whether the subordinate court has exercised jurisdiction not vested or, if vested, whether it has failed to exercise the same or has acted illegally or with material irregularity; E

(ii) revision taken under the magistrates court act of 1984 has no limitation;

(iii) the trial magistrate lacked pecuniary jurisdiction to entertain the matter and the proceedings are a nullity. F

Case Information

Order accordingly.

[zJDz]Judgment

Katiti, J.: In the most inelegant, if not also unintelligible plaint, one Mohamed Ahmed, herein to be called the plaintiff filed a civil action in Bunda District Court, claiming G shs.280,460/=, the value of diverse merchandise claimedly delivered to Abdu Hassan, at the latter's instance, and promise to pay, and that no payment has not been effected. The trial Magistrate Mr. C.A. Kayaga the Senior District Magistrate, and District Magistrate-in-charge of Bunda District, seised the case and went ahead to try the same, H and so did to finality. The Principal Resident Magistrate, and Resident Magistrate-in-charge Mara Region, has under the provisions of Section 44(2) of the Magistrates Court Act 1984, referred and forwarded the record to the High Court, questioning the trial Magistrates pecuniary jurisdiction, in the matter and recommending revision, if it is so befitting. I

1989 TLR p182

KATITI J

To be settled first, is the propriety of the Resident Magistrate-in-charge's action, of A forwarding the record to the High Court, with proposition as to the possible exercise of revisional powers by the High Court. There is no beating about the bush. Indeed the provisions under Section 44(2) of the Magistrates Courts Act 1984, hereafter to be B called the act, does confer statutory powers, upon the Resident Magistrate-in-charge, so pointed by the Honourable Chief Justice, to call for, or inspect, any proceedings, for purposes of satisfying himself, as to the correctness, legality, or propriety of any decision, or order, and as to the regularity of the proceedings therein, and may where he C thinks the decision, or order, is illegal, forward the

record with a report to the High Court in order that, it may consider whether, or not to exercise its powers of revision.

In this case the Mara Resident Magistrate-in-charge, did indeed forward the record to us, with attendant report, within the letter and spirit of the above statutory provisions, D and there is no way that action, can be impugned in law.

The proposition here, is that this court exercise revisional jurisdiction, if the record is good material for the same. It would however in prospect appear to me, that, a decision E by any court subordinate, to the High Court may be susceptible to revision, either under the provisions of 43(2) of the Act 1984, or under the Provisions of Section 79 of the Civil Procedure Code 1966. That is the High Court may under Section 79 of the Civil Procedure Code 1966, straight call for the record, for revision, or act in revision F after the Resident Magistrate-in-charge has under the provisions of Section 44(2) of the Act 1984, forwarded the record, and the attendant report on the same to the High Court.

I am however verily anxious, to see how these provisions differ if at all, and which section is my vehicle of transport in this case. The revision section 79 of the Civil G Procedure Code 1966 provides:

79 (1) the High Court may call for the record, of any case which has been decided by any court subordinate to the High Court, and in which no appeal lies thereto, and if such H subordinate court appears:

(a) to have exercised a jurisdiction not vested in it by law, or I

1989 TLR p183

KATITI J

(b) to have failed to exercise a jurisdiction so vested or A

(c) To have acted in the exercise of its jurisdiction illegally, or with material irregularity, the High Court may make such order in the case as it thinks fit.

(2) Nothing in this section shall be construed as limiting the High Court's powers to B exercise revisional jurisdiction under the Magistrates Courts Act (1963) now (1984).

It does from the above seem to me, that, first, the power for revision under section 79 of C the Civil Procedure Code 1966, is discretionary, second, it is applicable in the case in which no appeal lies, and this where, the subordinate court appears.

(1) To have exercised jurisdiction not versed in it by law, or

(2) To have failed to exercise a Jurisdiction versed in it by law or D

(3) To have acted in the exercise of its jurisdiction illegally, or with material irregularity.

The above mean, that the High Court has no power to interfere in revision under this E section, except in particular in the three cases mentioned above. Vindicating the above view, is the case of Privy Council Case Venka Tagiri v Mindu Religious Endowments Board 76 I.A. 67, [1949] APC 156, that commented on Section 115 of the Indian Civil Procedure Code, - the equivalent of section 79(1) of our Civil F Procedure Code 1966 thus:

Section 115 applied only to cases in which no appeal lies and where the legislature has provided no right of appeal ... The section empowers the High Court to satisfy itself on three G

matters, (a) that the order of the subordinate court is within its jurisdiction, (b) that the case is one in which the Court ought to exercise jurisdiction, and (c) that in exercising jurisdiction, the court has not acted illegally, that is, in breach of some provisions of law, or with material irregularity, that is by committing some error of procedure in the course of the trial which is H material, in that it may have effected the ultimate decision. If the High Court is satisfied on these three matters, it has no power to interfere, because it differs however profoundly from I the conclusions of the subordinate court on questions of fact or law.

1989 TLR p184

KATITI J

It is obvious from the above that the High Court revisional powers under section 79(1) A of the Civil Procedure Code 1966 are circumscribed, for while discretionary, they are limited to cases where no appeal lies, and issues whether, the subordinate court has exercised jurisdiction not vested, or if vested whether has failed to exercise the same or B has in the exercise of such jurisdiction acted illegally or with material irregularity - and that is all. But revision under, or taken as a result of exercise of powers of under section 44(2) of the Magistrates Court Act 1984 and therefore under section 43 (2) and 44(1) C of the same Act 1984, sufffers no such limitation, other than that, "it should appear that there has been an error material to the merits of the case involving injustice." It therefore seems to me, that, revision provisions under the Magistrates Court Act 1984 - see section 43(2) and 44(1)(b), unprejudiced as they are, as per statutory declaration in section 79(2) of the Civil Procedure Code 1966, are wider and liberal, and it is under D the same provisions that, this revision is undertaken.

In this case, the trial magistrate was appointed and vested with relative civil jurisdiction vide G.N.212 of 1984 to have power in respect of: E

2 (b) other proceedings where the subject matter is capable of being estimated in monetary valve, in which the value of the subject matter does not exceed one hundred thousand shillings. F

But as above pointed out, the claim in this case, was valued at shs.280,460/=, and yet the trial magistrate purported of try the case. But obviously the figure went beyond the pecuniary jurisdiction vested on to him, therefore the trial magistrate acted without G jurisdiction. It may therefore be posed, whether this "was an error material to the merits of the case involving injustice", as posed by section 44(b) of the Magistrate's Court Act 1984. I would like to argue, that whatever merits of any case must have a jurisdictional foundation upon which they are built, and merits cannot in my view, emanate from a H jurisdictional nullity. The trial Magistrate had no pecuniary jurisdiction and absence of jurisdiction not only automatically affected merits but also justice. The proceedings are hereby declared null and void. The plaintiff is advised, to file his action in the appropriate court, if he is still so minded. Costs to fall upon the plaintiff. I

Order accordingly.

1989 TLR p185

A

[zRPz]MAGIRINI MAHINYA v MBWIGA MKEYA 1989 TLR 185 (HC)

Court High Court of Tanzania- Mbeya
Judge Mchome J

10 October, 1989
Flynote
Sale of goods - Buyer discovers goods to be defective on delivery - Had no opportunity to B inspect goods - Whether principle of caveat emptor applicable.
Sale of goods - Goods discovered to be defective - Breach of implied warranty by seller that goods in reasonable condition. C
-Headnote
The appellant sued the respondent in Uyole Primary Court, Mbeya, for recovery of 5,000/= being purchase price for a tyre the respondent had sold to the appellant. After being paid 5,000/= cash the respondent delivered the tyre to the appellant's house.
On the facts of the case, the appellant got no opportunity to inspect the tyre. He was just D told by the respondent that the latter had a tyre for sale and asked him to deliver it at his house. When the appellant found the tyre to be defective, that being the first time to see it, he went to ask for the refund of his money. The Primary Court gave judgment in favour of the appellant (original plaintiff). E
The respondent (original defendant) appealed to the District Court of Mbeya. The District Court allowed the appeal applying the principle of caveat emptor. The District Magistrate reasoned that the appellant was entitled to a reasonable inspection of the goods he intended to purchase, and that if the buyer omitted or neglected to do this at F the earliest opportunity he could not be allowed to take action at the later stage.
On appeal by the appellant (original plaintiff) to the High Court of Tanzania. G
Held: (i) The appellant saw the tyre for the first time after it had already been delivered to his house. He got no opportunity to inspect the tyre. So the question of the appellant having inspected the goods at the earliest opportunity does not arise. Thus, the principle of caveat emptor is inapplicable to this case; H

(ii) in selling a defective tyre to the appellant the respondent committed breach of implied warrant on his part that the goods sold would be in reasonable condition.
Case Information
Appeal allowed. I
1989 TLR p186
MCHOME J
[zJDz]Judgment
Mchome, J.: The Appellant, Magirini Mahinya sued the Respondent Mbwiga Mkeya A in the Uyole Primary Court, Mbeya for recovery of 5,000/= being purchase price for a tyre the respondent sold the appellant. The respondent after being paid the 5,000/= cash delivered the tyre at the appellant's house. When he appellant came and found the B tyre he discovered it

was defective. He returned it to the respondent and the latter promised he would refund the appellant his money and take back his tyre. This was way back in 1966. But the respondent never did so despite several reminders. Hence this suit. C

In his defence the respondent totally denied to have sold the tyre to the appellant. He alleges that the appellant and his witnesses may have mistaken him for someone else.

The Primary Court gave judgment in favour of the appellant (original plaintiff). Then the D respondent (original defendant) appealed to the District Court. The District Court allowed the appeal applying the principle of "Caveat emptor". This therefore is a second appeal.

Both lower courts found that the respondent is the one who sold the tyre in question to E the appellant. The respondent's allegation that the appellant and his witnesses may have mistaken him for someone else was rightly rejected as the transaction took place during broad daylight and more than once. The allegation by the respondent that the P.Ws are F all relatives of the appellant and so should not be relied upon was also rightly rejected by both lower courts since they are competent witnesses, their relationship to the appellant notwithstanding, and there was no evidence that they were lying because of their relationship with the appellant.

In allowing the first appeal the District Magistrate alleges that the appellant was entitled G to a reasonable inspection of the goods he intended to purchase, and that if the buyer omits or neglects to do this at the earliest opportunity he cannot be allowed to take action at the latest stage.

The principle of caveat emptor is inapplicable to this case after the appellant had H explained that he got no opportunity to inspect the tyre. He was just told by the respondent that the latter had a tyre for sale and asked him to deliver it at his house. When the tyre was brought the appellant was not at the house. P.W.II who had instructions to receive the tyre and pay for it said he did not know the terms of their I agreement so did not inspect the tyre. When the appellant came and found the tyre to be defective, that being his

first time to see it, he went to ask for the refund of his money. So the question of the A buyer having not inspected the goods at the earliest opportunity does not arise.

Rather it is a question of a breach of implied Warranty on the part of that seller that the goods would be in a reasonable condition. Nobody can enter into a sale agreement to B buy a useless tyre and pay 5,000/= for it.

The respondent is a liar to say he never sold the tyre to the appellant, as he was found by both lower courts. He is not even constant in his testimonies. He says either he never sold the tyre at all or he sold it when it was in good order. Such contradictory statements C make me find it most probable that the respondent not only sold the tyre to the appellant, but also sold a defective tyre. He had admitted to have sold the tyre and contended that it was in good order or that their oral agreement was to sell him a defective tyre his evidence would have been worth considering. But denying totally to D have sold the tyre make me like did the Primary Court that he is most probably lying. I therefore allow this appeal with costs.

E Appeal allowed.

F

[zRPz]M/S SOUTHERN HIGHLAND v M/S TANZANIA OXYGEN LIMITED 1989 TLR 187 (HC)

Court High Court of Tanzania- Mbeya
Judge Mwaikasu J

13 October, 1989

Flynote

Contract - Agency - Termination - Terminable at instance of either party by three months G notice - Termination by principal - No evidence that termination notice served on or received by agent - Effect.

Contract - Agency - Termination of authority of - When it takes effect. H

Contract - Agency - Termination of authority of agent - Onus of proof.

Contract - Agency - Terminable by notice - Wrongful termination by principal - Agent claims damages in lieu of notice - Measure of damages. I

1989 TLR p188

Contract - Agency - Termination - Express or implied contract that agency to be continued A for a period of time - Wrongful termination - Consequences.

-Headnote

The plaintiff entered into and executed the defendant's standard form contract of agency B for the distribution of the defendant's full oxygen gas cylinders at an agreed commission. The contract had a termination clause providing for a three months termination period at the instance of either party. While the contract was subsisting the Managing Director of the plaintiff company went abroad on a private mission. C

He however, entrusted the management of the business of the plaintiff company to another person. While the said Managing Director was absent, the defendant terminated the agency contract by three month notice. The notice termination was not addressed in D the plaintiffs company's business name but was addressed to the person entrusted with the management of company's business. The defendant alleged that the termination of the contract was prompted by the plaintiff's breach of the contract. The plaintiff incurred loss of profit and claimed shs. 300,000/= as relief in lieu of notice. In an action before the E High Court by the plaintiff for breach of contract arising out of the defendant's termination of the agency contract.

Held: (i) Since the notice of termination was not addressed to the plaintiff company as the contracting party and in its business name, the said notice, if it ever reached its F destination in the absence of the plaintiff company's Managing Director, was and must have been treated as a private affair by the care-takers of the plaintiff company's business in respect of the plaintiff company so that should the notice have come to the knowledge of the Managing Director on his return, it could not be properly taken as a G proper business communication with the plaintiff company, and plaintiff would therefore be entitled to ignore it;

(ii) in terms of section 160 of the Law of Contract Ordinance, Cap. 433 termination of the authority of an agent does not so far as regards the agent, take effect H before it become known to him. The onus of proving that such notice of termination of the agency had come to the knowledge of the agent, in this case the plaintiff company, rests with the principal, in this case the defendant company;

(iii) the plaintiff having had no evidence to show how damages to the tune of I shs.300,000/= were arrived at, the only reasonable

amount to be claimed as relief in lieu of notice must be the amount which ought to have A been due to the plaintiff company by way of commission;

(iv) in terms of section 157 of the Law of Contract Ordinance where there is an express or implied contract that the agency should be continued for any period of time, B the principal must make compensation to the agent for any premature revocation or renunciation of the agency without sufficient cause.

Case Information

Judgment for plaintiff. C

[zJDz]Judgment

Mwaikasu, J.: By the defendant's standard form of contract, Exhibit P.1, on 16th day of October 1978, the plaintiff entered into and executed a contract of agency for the distribution of the defendant's full gas cylinders, to its customers in Mbeya, at an agreed fee. The gas was oxygen for welding and medical purposes. D

The contract continued to be in force for seven years until it was terminated by the defendant as from 31st August 1986, by a purported three month's notice dated 19/5/86.

It is now the contention of the plaintiff that such contract was wrongfully terminated and E therefore breached by the defendant for want of the contract three months' notice as clearly stipulated under clause one of the contract. Hence the plaintiff's claim for the reliefs as prayed in his plaint.

That, however, has been categorically denied by the defendant.

Thereupon the following issues were agreed by the learned counsel for the parties: F

(a) Whether or not the defendant had issued to the plaintiff notice of termination of the agency relationship on 19/5/86; G

(b) Whether or not, if such notice had been so issued the same was in accordance with the procedure agreed under the contract between the parties;

(c) If agency relationship was then still existing, whether the defendant paid the plaintiff the agreed commission. H

(d) What reliefs, if any, are the parties entitled to.

The case for the plaintiff company centres on the only evidence of its proprietor, the P.W.1, one Mr. Vinod K. Babla, a businessman resident of the Municipality of Mbeya, I at short street, Block L. Plot 52.

MWAIKASU J

His evidence is to the effect that he is the proprietor of the Plaintiff Company, known as A Southern Highlands Motors Ltd., situated along Karume Avenue, within the Municipality of Mbeya, registered as Limited Company in 1982.

While the contract in question between the parties was still in operation, in March 1986, B the P.W.1 went abroad for marriage, and returned in August 1986. In his absence his business through the plaintiff company was then left in the hands of his secretary one Miss Mourine Nyondo. It is further his testimony that on his return from abroad, he did not receive any notice of termination of the plaintiff company's agency relationship with C the defendant, nor was he aware that in his absence his secretary received such notice. He has added that on his departure for his marriage abroad, he wrote a letter to the defendant company and personally handed it to an official of the Defendant Company in D Dar es Salaam, one Rwegoshora notifying them of his absence, and that he would be back in three months time. It would also appear that the defendant company was also informed that in his absence his office would remain open and taken care of by his friend one Thaker. On the P.W.1's return the said Thaker could not inform him anything as to E whether a notice or the termination of the agency relationship between the plaintiff and the defendant company had been received from the defendant business transactions did then continue as usual until sometime in August 1986, when a truck carrying full cylinder gas that called at the company premises had to be diverted by an official of the F defendant company called one Nkondo, (D.W.1) and sent the consignment to another person; within the Municipality. That is when the plaintiff company came to know that the agency had been terminated by the defendant company. He went on to testify that he G used to get a commission for the sale of the defendants gas, dependant upon the amount of gas cylinders supplied by the defendant company. That, however, is said to have ranged between shs.4,000/= and shs. 8,000/= paid monthly.

On the other hand, it is the defence case, inter alia, as testified the D.W.l, one Juma s/o H Nkondo, a Mechanical Engineer working with the defendant company, and the D.W.2, one Dr. Asajile s/o Kapungu, being the medical officer i/c., of Isoko Hospital, that following the absence of the P.W.1, while abroad for marriage, there developed deteriotion in the agency services rendered by the plaintiff company because the plaintiff I company could not make regular distribution of full gass cylinders particularly for hospital oxygen, as the person left to act for the P.W.l called at the premises part

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MWAIKASU J

time, leaving the plaintiff company's office premises closed often times. That then forced A the medical customers, as the D.W.2 once did, to follow the gas to the Head quarters in Dar es Salaam. According to the D.W. 2, such problem of supply became more acute between the months of March, April and May 1986.

Thereupon on account of such deteriotion in the plaintiff company's agency service with B the defendant company, on 19/5/86 the defendant company issued a three months' written notice to the plaintiff company for the termination of such agency contract between the parties. Such

notice was tendered before this court as Exhibit D.1, and is C also Annexure "C" to the written Statement of Defence. According to the D.W.1, such notice is unreferenced; it was not addressed to the plaintiff company, but to one Mr. Babla, the P.W.l in person, of Southern Highlands Motors, P.O. Box 252, Mbeya, it was sent by post but the D.W.1 could not tell whether it was by ordinary or registered post. D

It was then on the basis of such notice that on the expiration of the three months period of notice, on 31st August, 1986, the contract was brought to an end.

On being cross-examined, the D.W.1 has maintained that such termination of the contract was justified on the ground that the plaintiff company had committed several E breaches contrary to the provisions under clauses Nos. 4, 5, 9 and 21. The D.W.1, however, admitted that there was no evidence to show that the notice had SOUTHERN HIGHLAND v. T.O.L. (Mwaikasu, J.)been received by the plaintiff company, and that F Mr. Babla (P.W.1) was not a party to agency agreement, adding that before the P.W.1 went abroad, there was no business problem with the Plaintiff company. He went on to say that there was no prior communication between the plaintiff company and the defendant company regarding dissatisfaction of the defendant company's customers, with G the plaintiff company's agency services rendered. He could not also tell how much earnings had been lost by the defendant company during the absence of the P.W.1. Neither could he say how many deliveries had been made to the plaintiff and sales made during the absence of the P.W.1 as he had no documents to support the same, nor could H he produce any when time was given to the purpose.

From the above evidence it is evident that the contracting parties to the contract of agency the subject of this suit were Southern Highlands Motors Ltd., a limited company registered under Companies Ordinance and Tanzania Oxygen Ltd. The contract was I concluded on 16/10/78 and continued to be in force up to 31/8/86.

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MWAIKASU J

It is also common ground that in March 1986, the P.W.1, one Vinod K. Babla, the A proprietor and managing director of the plaintiff company had to travel abroad for his marriage, leaving his business in the hands of his secretary one Miss Maurine Nyondo, and Thaker, who worked part time. I also find as an established fact that during the B P.W.1's absence while he was abroad, his business premises were not regularly kept open to his customers. However, in absence of any documentary evidence to show the volume of business in respect of the oxygen gas, between the plaintiff and defendant companies, this court is unable to accept the evidence for the defendant and say that any C of the alleged breaches of the agency agreement clauses were actually so committed by the plaintiff company.

Nevertheless, any party was at liberty to terminate the contract at any time after giving a D three months notice to the other as provided for under clause I of the agreement.

Under Clause I of the agreement the parties agreed in the following terms and I quote:

I. This agreement shall be deemed to have commenced on the 16th day of October 1978 and shall continue until terminated by either party giving to the other three months E

notice in writing of its intention so to do or as provided in clauses 23 and 24.

Clause 23, of the agreement provides: F

If there shall be any breach by the Distributing Agent of any provision of this Agreement or if the Distributing Agent shall commit an act of bankrupting the company may forthwith terminate this agreement.

Under Clause 24 of it is there provided as follows: G

In the event of either party thereto selling or ceasing to carry on its business they shall have the right to terminate this agreement by giving one month's notice in writing.

In my view, the import of the above clauses is that, the contract could be terminated in I either one of the three situations: first, on the decision of either party, as he pleases, to end the contract agreement, when, in terms of clause I, he would then be required to give a three months' notice to the other party; second, whenever the Distributing Agent, in this case the plaintiff, breached any of

the provisions of the agreement, in which case in terms of clause 23, the Principal, in this A case the Defendant company, would be entitled to terminate the agreement immediately without prior notice to the Distributing Agent; and third, whenever either party happened to sell or cease to carry on his business, in which case the other party would be entitled to terminate the contract after giving a one month's notice. B

It is clear in the instant case that it is the first option under Clause I of the agreement that the defendant invoked in terminating the contract of agency with the plaintiff company.

The issue in respect of such three months' notice is whether the same was properly and C actually served upon the plaintiff company.

According to the evidence that is before this court, it is clear and undisputed that the purported notice dated 19/5/86 was not addressed to the plaintiff company as the D contracting party as such, but was addressed to one Mr. Bable of Southern Highlands Motors, P.O. Box 252. As such notice, if it ever reached its destination in the absence of the P.W.1, the Company's managing director, was and it must have been treated as a private affair by those left to look after the P.W.1's business in respect of the plaintiff company. For it was not addressed in the business name of the contracting plaintiff E company. So that should that have come to the knowledge of the P.W.1 on his return, it could not be properly taken as a proper business communication with the plaintiff company, and therefore would be entitled to ignore it. F

On the other hand it is the P.W.1's contention which could not be effectively challenged by the Defendant company that such alleged notice was not brought to his notice and he did not in fact receive it.

The defendant company has been unable to prove that such notice was actually received G by the plaintiff company or that it was aware of it in any way. For no proof could be offered as to how the posting of such notice was effected, and whether it actually reached the plaintiff company.

Yet in terms of s.160 of the Law of Contract Ordinance Cap. 433, the termination of the G authority of an agent does not so far as regards the agent, take effect before it comes known to him. The burden to prove that such notice of termination of the agency had come to the knowledge of the agent, in this case, the plaintiff company, rests with the principal, in this case, the defendant company. That the defendant company has failed to I discharge. It

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MWAIKASU J

follows, therefore, that the termination of the agency contract with the plaintiff company A must be regarded as wrongful.

The consequence of such wrongful breach of such contract of agency between the parties is to be found under the provisions of s.157 of the Law of Contract Ordinance. It is there provided thus: B

157. Where there is an express or implied contract that the agency should be continued for any period of time, the principal must make compensation to the agent ... for any previous revocation or renunciation of the agency without sufficient cause. C

I also accept as an established fact, as it was not at all challenged by the Defendant Company during the trial of this suit and as also laid down in Clause 19 of the agreement, that the plaintiff company used to be paid a commission by the Defendant D Company for the oxygen gas cylinders sold. It does not appear that such commission was paid to the plaintiff company for the period of September 1986 to October 1987, when this suit was instituted following such wrongful termination of the contract by the defendant company. E

I now proceed to consider the reliefs claimed. The first is for shs.56,000/= being loss of profits. I consider the same to be founded and it is accordingly granted. Then there is the second relief of shs.4,000/=, per month as loss of profits from the second relief of shs.4,000/=, per month as loss of profits from the month of November 1987, a month F following the institution of this suit to the day of judgment. That as well appears to be merited. It is accordingly granted. On the other hand, I find it hard to understand the basis for the relief of shs.300,000/= as prayed in item (c). For no evidence has been led G for the plaintiff company to show how such amount of loss has been arrived at. Nor does the agreement have any provision to such effort. The only reasonable amount to be claimed as relief in lieu of notice must be the amount which ought to have been due to the plaintiff company by way of commission. Thus for the requisite three months' notice the H plaintiff company is entitled to shs.18,000/=, in lieu of such notice, being the average of commission of between shs.4,000/= and shs.8,000/= that could be paid to the plaintiff per month.

In the final analysis judgment is entered for the plaintiff and it is hereby ordered that the defendant do pay the plaintiff as follows: I

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(a) Shs.56,000/= being loss of profit for the period of 14 months from September 1986, to A October 1987, at the rate of shs.4,000/= per month.

(b) Shs.76,733/= being loss of profits for the period of November 1987 to 13th October 1989, at the rate of shs.4,000/= per month, for 24 months and 13 days. B

(c) Shs.18,000/= being payment in lieu of three months' notice.

(d) Interest at the rate of 12% on the decretal amount from date of judgment to full settlement of the decretal amount.

(e) Costs of the suit. C

Order accordingly

1989 TLR p195

D

[zRPz]GBL & ASSOCIATES LTD v DIRECTOR OF WILDLIFE MINISTRY OF LANDS, NATURAL RESOURCES AND TOURISM AND TWO OTHERS 1989 TLR 195 (HC)

Court High Court of Tanzania- Dar Es Salaam

Judge Rubama J

16 October, 1989 E

Flynote

Contract - Government tender - Whether an invitation to treat or an offer.

Contract - Government tender - Whether central tender board obliged to accept highest bid. F

Contract - Tenderer's bid made within period stipulated by tenderee - When legally binding contract arises. G

Contract - Government tender - Period within which to bid and pay purchase price stipulated in tender - Tenderer bids within stipulated period - Tenderee accepts bid subject to confirmation sale price - Tenderee confirms award of tender but shortens original period within which sale price payable - Whether open to tenderee to modify period of payment of H sale price.

Contract - Government tender - Tender submitted within stipulated period - Tenderee accepts bid and confirms award of tender but shortens period within which sale price payable - Tenderer objects - Tenderee cancels award of tender - Whether open to I tenderee to cancel award after acceptance.

1989 TLR p196

Civil Practice and Procedure - Right of hearing - Parties to suit aware of hearing date - A Defendants absent at hearing without assigning any reason - Suit set down for ex parte proof - Defendants enter appearance on day set down for ex parte - Whether defendants have a right of hearing. B

-Headnote

On behalf of the government of the United Republic of Tanzania the Secretary of the Central Tender Board by advertisement in the Daily News paper of 9/2/88, invited tenders for sale of elephant ivory of approximately 13 tons. The tenderers were C requested to quote prices per kilogram in US$ or any convertible foreign currency, the quotations to be firm and valid for acceptance for at least 60 days from closing date of the tender. Further, successful tenderers were required to make full payment and to collect the ivory within 30 days from the date of the award.

The plaintiff company, an agent of M/S TAT Hing Ivory Wares Factory, Hong Kong, D offered to buy the whole lot of ivory at US$ 80 per kilogram or at US$ l0% above highest bidder's offer should its offer be beaten. On 13/5/88 the Director of Wildlife, Ministry of Lands, Natural Resources and Tourism accepted the plaintiff company's offer to buy the ivory at E 10% above the highest bid which was US$ 140 - that is to say, at US$ 154 per kilogram subject to the plaintiff company confirmation within seven days of receipt of the letter of acceptance of the sale and at the price per kilogram. On the same day, i.e. 13/5/88 the plaintiff company communicated its confirmation to the Director of Wildlife. F On 19/5/88 the Director of Wildlife wrote to the plaintiff company's principal in Hong Kong stating that the plaintiff company were the winners of the government tender for the sale of nearly 16.5 tons of mixed ivory. The letter of the Director of Wildlife which was copied to the plaintiff company was silent as to the time for payment of the sale G price. On 28/5/88 the Acting Director of Wildlife wrote to the plaintiff company confirming that the tender had been awarded to it and requiring the plaintiff company to pay the sale price within the period of one week from the date of the letter. The H plaintiff company objected, maintaining that the tender regulations under which they had been operating had provided for a thirty day, and not seven day, period of payment of the sale price. On 22/6/88 the Director of Wildlife cancelled the award of the tender to the plaintiff company. In a suit by the plaintiff company heard ex parte on 15/9/89, for a I declaration that the cancellation of the tender was null and void:

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RUBAMA J

Held: (i) The advertisement by the Secretary of the Central Tender Board calling for the A purchase of elephant ivory was not an offer but an invitation to treat. Each of the tenderers offered to buy at his quoted price and it was upon the government of the United Republic of Tanzania to accept an offer or reject it; B

(ii) in the letter of the Director of Wildlife of 13/5/88 seeking confirmation on acceptability of the purchase price of US$ 154 per kilogram, the plaintiff company was being asked if it still stood by its tender to pay 10% above the highest bidder's offer. In this respect, the Central Tender Board was not obliged to accept the highest bid or any of the tenders for that matter. The highest bid need not necessarily be the best. The C Central Tender Board after opening tenders moves to evaluate them and it is the highest evaluated tender, which need not be the highest bid, that is accepted;

(iii) on the evidence, the tender by the plaintiff was the highest evaluated tender and that it was the offer that the government had accepted. By the Director Wildlife's D letter dated 19/5/88 to the plaintiffs principal in Hong Kong, the Director of Wildlife had created a legally binding contract between the government of the United Republic of Tanzania and the plaintiff's principal; E

(iv) the tender had been awarded to the plaintiff on the basis of the tender conditions stipulated in the advertisement that appeared in the Daily News of 9/2/88. These conditions required payment of the sale price within 30 days and not 7 days as demanded by the Director of Wildlife. It was not open to the Director of Wildlife to modify and shorten the said period of 30

days subsequent to him declaring the plaintiff F the winner of the tender. As there was a binding contract between the plaintiff and defender.

(v) the unilateral cancellation of the award of the tender to the plaintiff by the Director of Wildlife vide his letter of 22/6/88 was illegal and in breach of a contract which already existed. G

(vi) Obiter: The counsel for the defendants who appeared on 15/9/89 did not have a right of audience as the case was coming up for ex parte hearing.

Case Information

Judgment for plaintiff. H

Lamwai, for the plaintiff

Ihema, for the defendant.

[zJDz]Judgment

Rubama, J.: By Tender No. 116 of 1987 for the sale of Elephant Ivory appearing in I the Daily News dated 9th February,

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RUBAMA J

1988, the Secretary of the Central Tender Board on behalf of the government of the A United Republic of Tanzania invited tenders from potential authorised buyers for the purchase of "Elephant Ivory of approximately 13 Tons".

The tenderers were told that the Ivory for sale was available for inspection in the Ivory B Room, Dar es Salaam. Details on whom to contact to gain access to the Ivory Room and the allowed time were provided. The tenderers were also "requested to quote prices per kilogram in US$ or any convertible foreign currency". The quotations had to be firm C and valid for acceptance by the government for at least 60 days from closing date of the tender, i.e. 11 March, 1988, at 0900 am. Further, the successful tenderer was going to be required to make full payment and collect the Ivory within 30 days from the date of award of the tender. Failure to accomplish this was going to have the effect of nullifying the award.

GBL & Associates Ltd on behalf of a Principal, M/S Tat Hing Ivory Wares Factory D submitted its tender on 10th March, 1988, a day or so before the closing date for the tender. Their tender was couched in the following terms:

We offer to buy the whole lot of Ivory at US$ 80 (eighty) per kilogram. E

PRINCIPAL CONDITION

Should our tender above become low, then we offer 10% above highest bidders' offer. F

On 13th May, 1988 the Director of Wildlife, Ministry of Lands Natural Resources and Tourism wrote to GBL & Associates Ltd referring to a conversation he (the Director of G Wildlife) had had that morning with Mr. Lugendo of the GBL & Associates Ltd he stated:

As pointed out to you, we are prepared to award your company the tender for the sale of nearly H 16.5 tons of ivory at a price of US$ 154/kg of mixed or ungraded ivory. This price is arrived at as follows:

i. The highest bid in the tender advertised on 19th and 11th March, 1988 was for US$ I 140 (US$ one hundred and forty).

ii. In your quotation for the same tender, you offered US$ 80 or 10% over and above the A highest bidder.

iii. Since your quotation for US$ 80 was far too low, we opted for your second quotation (i.e. 10% above the highest bid, i.e. US$ 140. And 10% of US$ 140 = 154). B

The purpose of this letter is to seek your official confirmation that if you are finally awarded the tender for the sale of nearly 16.5 tons of ivory you will be able to pay US$ 154 per kilo of mixed ivory. We need your confirmation within seven days upon receipt of this letter. C

GBL & Associates Ltd, wrote to the Director of Wildlife on the same day, i.e. 13th May, 1988, confirming that if finally awarded the tender for the sale of nearly 16.5 tons of ivory, they would pay US$ 154 per kilo of mixed ivory. No doubt following receipt of D the confirmation of sale price per kg. from GBL & Associates Ltd., on 19th May, 1988 the Director of Wildlife directly communicated with the plaintiff's Principal in Hong Kong copying the letter to the plaintiff. The Director of Wildlife stated: E

This is to confirm that Messrs GBL Associates Ltd. of P.O. Box 3154, Dar es Salaam, Tanzania, are the winners of the recent Government tender for the sale of nearly 16.5 tons of mixed ivory. F

We also confirm that the ivory will be accompanied by relevant CITES documents which will only be released after the ivory has been paid for in full.

No mention of within what time that payment for the ivory had to be effected. The G Acting Director of Wildlife did, however, address the Managing Director of GBL & Associates Ltd. on the time within which payment for ivory had to be made. In his letter dated 28th May, 1988, he stated: H

I have the pleasure to inform you that you have been awarded the said tender under the following conditions:

(a) That you will pay US$ 154.- per kg without subjecting the lot to any grading. I

(b) That you are ready to effect the total payment of the

16.538 tons of elephant tusks at once, into our Bank Account within a period of one A week from the date of this letter.

The condition on payment schedule was objected to by Mr. Lugendo on the very day, B i.e. 28th May, 1988. He maintained that the Tender regulation under which they had been operating had provided that payment for the purchased ivory had to be effected within 30 and not 7 days. He called upon the Ag. Director of Wildlife to honour his own tender regulations. On the same day, Mr. Lugendo also communicated by phone with C the boss of the Acting Director of Wildlife, i.e. the Principal Secretary, Ministry of Lands, Natural Resources & Tourism. He confirmed this conversation in a letter addressed to the Principal Secretary. He stated:

Please refer to our telephone conversation of this morning with our Mr. Lugendo and we wish D to know your account number and where in Europe or anywhere and name of your Bankers so that our Principal in Paris and Hong Kong can send the money in respect of the purchase of the ivory which you have advised us we have won on behalf of our Principals. Without this E information, we cannot arrange for payment.

On 14th June, 1988, Mr. Lugendo in two letters addressed to the Director of Wildlife one of which was copied to the Principal Secretary of the Ministry of Lands, Natural F Resources and Tourism presses for the same information he had sought from the Principal Secretary on 28th May, 1988, i.e. where his Principal was to effect payment for the 16.538 tons of elephant tusks. The response to these letters was a letter dated 22nd June, 1988, addressed to Mr. Lugendo from the Director of Wildlife cancelling the G award of the tender number 116 for the purchase of 16.538 tons of elephant tusks. The second paragraph of that letter reads:

I wish to inform you that a decision has been taken by the Government to cancel the award of H the tender number 116 to your firm for the purchase of 16.538 tons of elephant tusks. Our letter No. GWC.5/73/315 dated 28th May, 1988, addressed to you in which you were awarded the tender is, therefore, withdrawn. I

1989 TLR p201

RUBAMA J

Following this communication GBL & Associates Ltd filed a suit against the defendants A seeking the following orders.

(i) A Declaration that the government Tender award for 16.538 tons of ivory, the subject matter of this suit, is still valid and that the cancellation of the same by the 1st and 2nd defendant is null and void. B

(ii) An order that the 1st and 2nd defendants issue to the Plaintiff and/or its Principal, M/S Tat High Ivory Wares Factory Cites certificates and all necessary permits to enable the plaintiff and/or its principal to export the ivory from Tanzania. C

(iii) Costs of this suit.

(iv) Any other relief which the court will deem fit to grant.

I wish to first state that this suit was properly filed in that consent of the Attorney General D was duly obtained for purpose of suing the government. The 1st and 2nd defendants have been included herein since they were the officers that had been involved in this case.

Following completion of the pleadings, this case was fixed for hearing on 20th July, 1989 E before my brother judge (Kyando, J.). All the parties were aware of this hearing date. However, the defendants without assigning any reason absented themselves. The learned counsel for the plaintiff prayed for permission to prove his case ex parte by affidavit. This prayer was granted. An Affidavit was duly filed on 11th August, 1989 as ordered F by the Court (Kyando, J). The case eventually came for hearing on 15th September, 1989 when learned counsel for the plaintiff, Dr. Lamwai, prayed for judgment. Mr. Ihema, learned counsel for the Defendants, also appeared on this day. He did not on the G day have a right of audience as the case was coming up for an ex parte hearing.

In the affidavit sworn by the Managing Director of GBL & Associates Ltd. in compliance with this Court's order of 20th July, 1989 (Kyando, J.), the deponent submits that once the tender was made on the basis of the conditions stipulated in the H advertisement that had appeared on the Daily News on 9th February, 1988, namely, the period within which to pay to be 30 days, it was not open to the 1st defendant to modify and shorten the said period, especially subsequent to the 1st defendant declaring the plaintiff the winner on the 19th of May, 1988, and the 1st defendant's letter dated 28th I May, 1988 did not have any effect on the original terms of payment

as stipulated in the original agreement. Further noting that on the 22nd day of June, A 1988, the 1st defendant, vide his letter of even date, unilaterally cancelled the award of the tender, the deponent submits that this unilateral action by the 1st defendant was illegal and in breach of a contract which already existed.

Let us revisit the advertisement by the Secretary of the Central Tender Board calling for B tenders from authorised buyers of Elephant Ivory. The tenderers were "requested to quote prices per kilogram in US$ or any convertible foreign currency" and further informed that: C

(a) Quotations be firm and valid for acceptance by the government for at least 60 days from closing date of the tender, i.e. 11th March, 1988, at 9.00 a.a. and that

(b) The successful tenderer would be required to make full payment and collect the Ivory D within 30 days from the date of award of the tender. Failure to comply with this requirement was going to nullify the award.

Were the Tender Regulations operative in respect of Tender No. 116 for the purchase E of 16.538 tons of Elephant Tusks those detailed by the Secretary to the Central Tender Board's advertisement appearing in the Daily News of 9th February, 1988? This court accepts the plaintiff's submission that the tender had stipulated in the advertisement that had appeared on the Daily News on 9th February, 1988. F

The plaintiff on behalf of M/S TAT Hing Ivory Wared Factory of the United Kingdom had quoted the price of the highest bidder plus 10% thereof as its tender price. This quotation was in a convertible currency, i.e. American Dollars. From the exchange of letters between the Director of Wildlife and the Managing director of GBL & Associates G Ltd (both dated 13/5/88) fully reproduced above, it is clear that the quotation by GBL & Associates Ltd had remained firm and valid for the acceptance of the United Republic of Tanzania for more than 60 days from the closing date of the tender, i.e. 11/3/1988 at H 9.00 am. The 1st defendant, vide his letter dated 19th May, 1988 addressed to the plaintiff accepted the plaintiff offer and required the payment of US$ 154.00 per kilogram.

What then was the legal status of the advertisement by the Secretary of the Central Tender Board that had appeared on the Daily News on 9th February, 1988, calling for I the purchase of "Elephant Ivory of approximately 13 tons"? Was it an "invitation

to Treat" or an "Offer"? Was the Central Tender Board obliged to accept the highest A bid? The call for tenders by the Secretary of the Central Tender Board on behalf of the Government of the United Republic of Tanzania was an "Invitation to Treat". These tenderers' bids were the "offers". Each of the tenderer offered to buy at his quoted price and it was upon the Government of the United Republic of Tanzania to accept an offer B or reject. The substance of the Director of Wildlife's letter dated 13th May, 1988 to GBL & Associates Ltd., seeking confirmation from GBL & Associates Ltd. on acceptability of the purchase price of US$ 154 per kilogram of ivory testifies to this very fact. In this letter, GBL & Associated Ltd were being asked if they still stood by their C tender to pay "10% above the highest bidder's offer." In this respect, the Central Tender Board was not obliged to accept the highest bid or any of the tenders for that matter. The highest bid need not necessarily be the best to accept. The Central Tender Board after opening tenders moves to evaluate them and it is the highest evaluated tender which D need not be the highest bid that is accepted. Going by the various communications between the Director of Wildlife and the Managing Director of GBL & Associates Ltd., the Director of Wildlife and the plaintiff's Principal and also between the Principal E Secretary, Ministry of Lands, Natural Resources and Tourism and the Managing Director of GBL & Associates Ltd., it is clear that the tender by the plaintiff was the highest evaluated tender and that it was the offer that the government had accepted vide its letter by the Director of Wildlife dated 19th May, 1988 to the plaintiff's Principal in F Hong Kong which was copied to the GBL & Associates Ltd. Dar es Salaam. The 1st defendant, ignoring the legal effect his letter to the plaintiff's Principal has had, again directly wrote to the plaintiff on 28th May, 1988, stating that the tender for the purchase of Elephant Tusks had been offered to the plaintiff. By the 1st defendant's letter dated G 19th May, 1988 to the plaintiff's principal in Hong Kong, the 1st defendant had created a legally binding contract between the government of the United Republic of Tanzania and the plaintiff's Principal. This legal status between the two parties was again affirmed by the 1st defendant's letter dated 28th May, 1988, addressed to the Managing H Director, GBL & Associates Ltd. In this situation, what is the effect of the United Republic of Tanzania's action "to cancel the award of the tender No. 116 to the plaintiff for the purchase of 16.538 tons of Elephant Tusks" communication to the plaintiff vide the 1st defendant's letter dated 22nd June, 1988? I

As the Tender Regulations operative in respect to Tender No.

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RUBAMA J

116 for the purchase of 16.538 tons of Elephant Tusks those detailed by the Secretary A of the Central Tender Board's advertisement appearing in the Daily News of 9th February, 1988 a successful tenderer was going to be required to make full payment and collect the Ivory within 30 days from the date of award of the tender. Failure to B accomplish this was going to have the effect of nullifying the award. "Within 30 days" here does not apportion the time within which to make payment on award of the tender and the time within which to collect the elephant tusks. The successful tenderer could, if he so chose, make payment on the last day allocated, i.e. 30 days and collect the elephant tusks on the same day. C

It is clear that the 1st defendant had not acted under the above mentioned regulation. There is no reference to non-payment for the ivory or failure to collect the bought ivory within 30 days from the date of award of the tender. If the government had proceeded D under this regulation, the award of the tender would have been nullified. This is not the case in the instant case. Here we are told "that a decision has been taken by the government to cancel the award of the tender No. 116 ... for the purchase of 16.538 tons of elephant tusks". No reason is assigned. The plaintiff was left to speculate whether E that government reaction was out of the objection raised by the Managing Director, GBL & Associates Ltd. that the tender regulations under which they were operating required payment within 30 and not 7 days as demanded by the Director of Wildlife. For whatever reason the government had thus acted, this chief accepts the plaintiff's F submission that the tender had been awarded to the plaintiff on the basis of the tender conditions stipulated in the advertisement that had appeared on the Daily News on 9th February, 1988, namely, the period within which to pay to be 30 days. It was not open to the 1st defendant to modify and shorten the said period of 30 days subsequent to the G 1st defendant declaring the plaintiff the winner on the 19th day of May, 1988. As noted above, there was a binding contract between the defendants and the plaintiffs on the 19th of May, 1988 and the 1st defendant's letter dated 28th May, 1988 could not have any effect on the original terms of payment as stipulated in the original agreement. H The 1st defendant's unilateral cancellation of the tender award vide his letter of 22nd June, 1988 to the plaintiff was illegal and in breach of a contract which already existed. On the materials before this court, I further find that in consequence of the cancellation referred above, the plaintiff and its Principal have suffered loss in that they had already I opened letters of credit in favour of the defendants and that payment had been

duly made and the contract thus firmly concluded. The defendants could not back out of A it at will.

In view of the above, I enter judgment for the plaintiff with costs as prayed: B

(i) It is hereby declared that the Government Tender award for 16.538 tons of ivory, the subject matter of this suit, is still valid and that the cancellation of the same by the 1st and 2nd defendants is null and void.

(ii) It is ordered that the 1st and 2nd defendants issue to the plaintiff and/or its Principal, C M/S TAT Hing Ivory Wares Factory Cites certificates and all necessary permits to enable the plaintiff and/or its principal to export the ivory from Tanzania.

(iii) Costs of this suit. D

Lastly, I find it necessary to state the obvious that the law involved in this case is extremely simple. Appreciating that, I must express utter astonishment on how so straight forward a matter could be left to get out of hand leading to the necessity of a government being taken to court. Worse still, the action of the principal actors on behalf of the E government have been contradictory and unilateral and in complete disregard to the adverse repercussions in its future dealings in international trade. Consistency, steadfastness and fairness are some of the many

qualities and a democratically elected F government as the one being sued is must strive to have in its dealings. A government that chooses when to abide by a freely entered contract does so at extreme costs to its reputation or standing. This court decries this sorry development.
G Order accordingly.
1989 TLR p206
A
[zRPz]SAIDA SAID v SAIDI MOHAMEDI 1989 TLR 206 (HC)

Court High Court of Tanzania- Songea
Judge Maina J

30 October, 1989 B
Flynote
Court of Appeal Rules - Appeals - Application for extension of time to appeal to the Court of Appeal - Whether sufficient reasons shown.
Law of Limitation - Delay in filing an appeal - Whether appellant has sufficient cause for the delay. C
-Headnote
This is an application for the extension of time within which to appeal to the Court of Appeal and for leave to appeal to the Court of Appeal. The judgment of the first appellant court (The High Court) was delivered in the High Court on 14 November D 1988 at Songea in the presence of the parties. The applicant filed a notice of appeal in time. She however got a copy of the judgment, at Mtwara registry, on 26 January 1989. She could not, therefore, apply for leave in the High Court to appeal to the Court of E Appeal within fourteen days as required by Rule 43(a) of the Tanzania Court of Appeal Rules. The point of law and mixed law and fact for determination by the Court of Appeal are sufficiently highlighted in the ruling.
Held: (i) As reasonable and sufficient cause for delay has been shown application for F extension of time is granted;
(ii) there are both points of law and mixed law and fact needing determination by the Court of Appeal in this case.
Case Information
The application is granted as prayed. G
Mwajasho, for the applicant
Haule, for the respondent
[zJDz]Judgment
Maina, J.: This is an application for extension of time within which to appeal to the H Court of Appeal and for leave to appeal to the Court of Appeal.
The judgment of this court was delivered on 14 November 1988 at Songea in the presence of both parties. The applicant gave notice of intention to appeal to the Court of I Appeal on the same day, and she paid the relevant fees. The applicant was required to

seek leave of the High Court within fourteen days of appeal, as required by Rule 43(a) A of the Tanzania Court of Appeal Rules. But she did not do so within the period prescribed. Her reason for delay is that she could not obtain the copy of the judgment until 26 January 1989 and she had to send it to her advocate at Dar es Salaam. She had to travel to the High Court Registry at Mtwara for the purpose of obtaining the copy of B judgment. She says in her affidavit that the clerks at the High Court Registry were not cooperative and they kept telling her that only her advocate could obtain the copy of the judgment. How she eventually obtained it is not known. Mr. Haule, for the respondent, has strongly opposed the application saying that the applicant is indolent and a liar. C

There is no dispute that the appeal was heard by this Court at Songea where the judgment was delivered. It is common knowledge that the High Court Registry for Mtwara Zone is at Mtwara, and whatever judgments are pronounced at Songea, the D copies of those judgments cannot be ready for distribution to the parties until after the files are returned to Mtwara. There is no record to show when the copy of judgment in this case was ready. In my view, it could not be possible to have the judgment ready for distribution immediately. The applicant had to travel to Mtwara for her copy of the E judgment. It is alleged that she did not receive it until 26 January 1989, just over two months after the judgment was delivered. Mr. Haule demanded a receipt as proof of the date the applicant received the copy of judgment. This, Mr. Mwajasho, counsel for the applicant, could not produce because the matter was heard at Songea while the F applicant was residing in Dar es Salaam and Tanga.

In the circumstances of this case, as I have said, it was not possible for the applicant who was then resident at Songea where the appeal was heard, to have obtained the copy of the judgment at Mtwara immediately, or within a short period. The problems of G communication between Songea, Mtwara and Dar es Salaam are well known.

It was also said that the delay in filing the application was due to unavoidable circumstances. The application was filed in August 1989. This, as Mr. Haule said, the H applicant obtained the copy of the judgment on or about 26 January, 1989. She had to take it from Mtwara to Dar es Salaam where her advocate is based. She sought legal opinion and the affidavit was signed in March 1989. It is evident from the annextures to the affidavit that the application was sent to the High Court Registry at Mtwara in March I 1989, and not February 1989 as stated in the supplementary affidavit. The

letter from the District Registrar dated 6 March 1989 returning the application to the A advocate for the applicant is proof that the application was submitted at the High Court in late February 1989 or early march 1989. There was an exchange of correspondence between the District Registrar and Mr. Mwajasho for certain corrections to be made in B the application and for fees payable, until the application was eventually accepted by the High Court Registry and filed on 21 August 1989. So, between March 1989 and August 1989, there was a chain of

correspondence between the High Court Registry and the advocate for the applicant about the application. It cannot be said that the C applicant had delayed until August 1989 when the application was filed.

The application was presented for filing before March 1989, but the District Registrar refused to register the application due to certain matters which the District Registrar D pointed out that they needed corrections. The question is whether the applicant has shown sufficient or reasonable cause of the delay so that she may get an extension as provided in section 14(1) of the Law of Limitation Act, 1971. On the whole, the applicant was diligent and not indolent. She gave notice to appeal on the same day the E judgment was delivered by the High Court at Songea. She had to travel to Mtwara to get a copy of the judgment. I believe her that she did not get the copy she needed at the time she wanted it. There was no reason for her to travel to Mtwara and then sit back. When she eventually got the copy of judgment she had to take it to Dar es Salaam to her F advocate. The papers which were eventually filed at the High Court Registry at Mtwara were not immediately accepted, and the applicant cannot be held responsible for the ensuing delay. In the circumstances, I find that there is reasonable and sufficient cause for the delay. G

Mr. Haule had submitted that the affidavit in support of the application was defective for non-disclosure of the source of information. I do not agree with him. The affidavit clearly stated the source of information on the matters stated thereon. It was not necessary of the applicant to give names of the clerks of the High Court Registry. She said that the H clerks did not cooperate in giving her the copy of judgment. That was sufficient disclosure.

For the reasons which I have given, I find that reasonable and sufficient cause for the delay has been shown and the extension applied for is granted.

As regards the points of law, Mr. Mwajasho submitted that there are several, while Mr. I Haule said that no points of law are

involved. The parties were husband and wife. Their marriage was dissolved by a decree A of divorce issued by this court of appeal. The dispute is over a house on Plot 15 Mbamba Bay road in Songea Township. Both the District Court and the High Court found that the respondent is the lawful owner of the house. The applicant wife claims that it is her house, and that it is not matrimonial property but personal property. The B certificate of Right of Occupancy is in the name of the Applicant. The Respondent alleged that he wanted to register the house in the name of his son, Saidi Saidi, and the applicant, by fraud, had the house registered in her name. C

There is another house, No. 11 Block C in Songea Township which the applicant had claimed she bought by paying shs.50,000/=. That evidence appears, according to Mr. Mwajasho, to have been confused as referring to the purchase of the house now in dispute. D

In my view, there are points of law involved in this case. They are as follows:

1. Whether a mere prior visit by contender to the Land Office is sufficient proof to rebut legal and registered ownership of an immovable property, to wit Plot E 15 C Mbamba Bay Road Songea Township, registered in the name of the Applicant.

2. Whether the fact of marriage per se rebuts the legal ownership of a granted Right of Occupancy. F

3. Whether in law a minor can hold or apply for a Right of Occupancy.

4. Whether the finding by the Appellate Judge as to ownership of the house on Plot 15 C Mbamba Bay Road in Songea Township is maintainable in law G when it seems the judge was addressing his mind to the evidence of DW9 Mrs. Hamza, the fact of shs.50,000/= which was in respect to another house No. 11 Block C Songea, property bought by the Applicant in the name of the respondent's son. H

Those are the points of law involved in this matter, and some may be of mixed law and facts.

I Application granted.

1989 TLR p210

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[zRPz]THOMAS MATONDANE v DIDAS MAWAKALILE & 3 OTHERS 1989 TLR 210 (HC)

Court High Court of Tanzania- Mwanza

Judge Mwalusanya J

2 November, 1989 B

Flynote

Customary Law - Will - Deceased illiterate - Requirements as to attestation rules on wills, GN No. 436/1963.

Customary land law - Clan land pledged to stranger - Relative redeems land prior to pledger's death - Effect of redemption.

Customary land law - Redemption of clan land - Acquisition of title by redeemer by long C and adverse possession - Customary Law (Limitation of Proceedings) Rules schedule, Item No. 6.

Customary land law - Clan land pledged to stranger - Relative redeems land - Redeemer deprived land by clan council - Redeemer not at clan council meeting - Natural justice. D

-Headnote

At Nshamba Primary Court, Muleba District in Kagera Region the respondents brought on action claiming a piece of clan land from the appellant. It was the appellant's case that E said piece of land belonged to him as it was bequeathed to him by will by his deceased brother one Karaba s/o Matondane. Moreover, he testified that he had redeemed that piece land on payment of shs.100/= from where it was pledged by the deceased. The case of the respondents was that the clan council had in 1982 allocated F the disputed piece of land of the deceased Karaba s/o Matondane to the respondent as the deceased had died intestate.

The Primary Court found in favour of the respondent holding that the will relied on by the appellant at the trial was null and void as the same was not attested by two clan G members and two non-clan members in terms of paragraph 19 of the Rules on Wills the deceased being an illiterate and further holding that the clan council properly allocated the disputed piece of land of the deceased Karaba s/o Matondane who had died intestate.

On first appeal by the appellant to the District Court of Muleba, the District Court H concurred with the Primary Court that the will was null and void for offending para 19 of the rules on wills but held that the allocation of the land of the deceased by the clan council to the respondents was illegal as the appellant who was brother of the deceased was not called to attend the meeting of the clan council, he way condemned unheard I contrary to the principles of natural justice. The District Court ordered that another clan council meeting

incorporating the appellant be convened to decide the distribution of the estate of the A deceased Karaba s/o Mtondane.

Both the Primary Court and District Court did not consider the effect of the redemption of the piece of land by the appellant.

The appellant was aggrieved by the order of the District Court and appealed therefrom B to the High Court of Tanzania. In the course of hearing the appeal it was submitted by Mr. Rweyemamu, counsel for the respondents, that when one redeems clan land the land reverts to the clan and that it does not become the property of the redeemer. C

Held: (i) The will under which the appellant claimed ought to have been witnessed by two clan members and two non-clan members as required by the Rules on Wills since the deceased was illiterate. The will was therefore null and void;

(ii) redeemed clan land does not become the property of the clan. It is the law D that the redeemer of clan land which had been pledged becomes the owner of that land;

(iii) the appellant acquired a title to the piece of land after the expiry of 12 years during which he was in uninterrupted possession thereof;

(iv) it was contrary to the principles of justice to deprive the appellant of the E piece of land which he had long possessed without giving him a hearing.

Case Information

Appeal allowed. F

Rweyemamu, for respondent.

[zJDz]Judgment

Mwalusanya, J.: The four respondents (Didas s/o Rwakakile and his three brothers) successfully sued the appellant Thomas s/o Matondane, their uncle, in a claim of piece of G land at Nshamba Primary Court, Muleba District in Kagera Region. The trial court held that the clan council had in 1982 properly allocated the disputed piece of land of the deceased Karaba s/o Matondane to the four respondents as the said Karaba s/o Matondane died intestate without leaving behind any will. The trial court also held that H the will that was produced by the appellant at the trial was null and void as it offended para 19 of the Rules on wills GN. No. 436/1983 in that it was not attested by the clan members and two non-clan members, the deceased being an illiterate who did not know how to read and write.

The appellant made his first appeal to Muleba District Court. The District Court agreed I with the trial court that the will produced

MWALUSANYA J

by the appellant at the trial was null and void for offending para 19 of the Rules on Wills. A However, the District Court held that the distribution of the land of the deceased Karaba s/o Matondane by the clan council was illegal as the appellant was not called to attend that meeting of the clan council. The District Magistrate held that as the appellant B was the brother of the deceased, he should have been called to attend that meeting of the clan council. he said that it was against the principles of natural justice to have condemned the appellant unheard. So the learned District Magistrate held that the clan council should convene a fresh meeting incorporating the appellant and thereby decide C the distribution of the estate of the deceased Karaba s/o Matondane.

Aggrieved by that decision, the appellant has now appealed to this court. He contends that the District Court should have held that the land in dispute belonged to him as it was D bequeathed to him by will by his deceased brother Karaba s/o matondane. Moreover he said that he had redeemed that piece of land on payment of shs.70/= from where it was pledged by the deceased. The appellant agrees with the decision of the District Court that the decision of the trial court was using as he was not present when the clan E council deprived him his right of inheritance to that piece of land.

I will start the decision of this case by discussing the validity of the will that appellant produced at the trial. I agree with both courts below that the will in question is null and void as it offended para 19 of the Rules on wills GN. No. 436/1963. The will under F which the appellant claimed ownership was not witnessed by two clan members and two non-clan members as required by the Rules on wills which are applicable to Muleba District. The will that was produced at the trial was attested by three clan members but there was a non-clan member who signed it. It is not in dispute that the deceased G Karaba s/o Matondane was illiterate, as he did not know to read and write. Therefore the will was obviously null and void, and for the preposition of this law see the decision of this court in the case of Ferdinand s/o Lumboyo v Ngeiyamu s/p Kajuna [1982] T.L.R. N. 142 by Rubama, J. H

I now go to the question as to whether the appellant became the owner of the land in dispute after he had redeemed it in 1966. There was uncontroverted evidence at the trial that the deceased Karaba s/o Matondane has pledged that piece of land to a stranger for a loan of shs.100/= or shs.70/=. According to the appellant on 1/12/1966 he I redeemed that piece of land from the pledger by paying the shs.100/=. He did so after the deceased Karaba had declared his

failure to pay the loan and decided to emigrate for good to Kome Island where he died A in 1982. The appellant was using that piece of land since 1966 when he redeemed it until 1982 when the clan council decided to take the land in dispute from him and gave it to the four respondents. The clan council in their allegedly duly refunded by the four B respondents to the appellant at the clan council meeting. The appellant says that he never attended that clan council meeting which met in his absence.

Both courts below did not discuss the effect of the redemption of that piece of land by the appellant. Apparently both courts thought that because the appellant was refunded C the shs.100/= by the four respondents at the clan council meeting, then that was the end of the matter. Council for the four respondents Mr. Rweyemamu submitted that when one redeems clan land it reverts to the clan and that it does not become the property of the redeemer. He added by stating that since in the case at hand the appellant was D refunded the shs.100/= then he has no reason to complain.

In my considered view, the view taken by counsel for the four respondents Mr. Rweyemamu is wrong. It is the law that the redeemer of clan land that had been pledged becomes the owner of that land. That proposition of law is contained in paragraph 547 E of Cory and Hartnoll which reads as follows:

If the plantation has been pledged on the condition that it will become the property of the creditor failing the repayment of the debt within an agreed time, a relative has the right to F redeem it, even after the time limit has expired, as in invalid sale; in which case it follows that the plantation becomes the property of the man who redeems it.

The underlining above is mine for emphasis. And that is actually what was decided by G this court in the case of Martin s/o Bikonyoro v Celestin s/o Kaokola [1968] H.C.D. N. 87 by Cross J. and also in the case of Gabriel s/o Nzizula v Rooza d/o Muyungi: [1968] H.C.D. N. 126 by Mustafa, J. These two cases were emphatic that a relative who redeems clan land that had been pledged, becomes the owner of the redeemed H land; and para 547 of Cory and Hartnoll were cited as authority for that preposition of law. That being the case, it is obvious that the land in dispute in this case, became the property of the appellant when he redeemed it on 1/12/1966. That disposes of this case. I

1989 TLR p214

MWALUSANYA J

I am also of the view that the appellant acquired the title to the land in dispute by long A possession. It is common knowledge that the appellant in this case became in possession of the land in dispute in 1966 when he retained it. He had uninterrupted possession of that land from 1966 till 1986 (some 20 years later) when the four respondents filed this B suit. According to the Customary Law (Limitation of Proceedings) Rules GN. No. 311/1964 item No. 6 in the Schedule, any proceeding to recover possession of land should be filed within 12 years from the day the right accrues. Since it is contended that the appellant was in adverse possession of that piece of land since 1966, then the four C respondents or the clan council should have sued the appellant within 12 years from 1966. But that was not done and so the appellant acquired a title to that piece of land after the expiry of the 12 years.

It is now unnecessary to discuss the significance and effect of the clan council meeting of D 17/10/1982. The appellant has argued that the said meeting was void as it did not incorporate him, being a close member of the clan. In passing I would like to observe that the decision of the District Court appears to be correct that appellant did not attend E the clan council meeting in question. The trial court left this question open, without deciding as to whether the appellant attended the clan council meeting or not. I agree with the District Court that as the appellant did

not sign the minutes of the meeting while all those who attended signed the minutes, then the appellant did not attend the meeting. It was contrary to the principles of natural justice to deprive the appellant of the piece of F land he was occupying since 1966 without giving him a hearing.

Be that as it may, this appeal is allowed with costs. The judgments of the two courts below are set aside and I hereby declare the appellant to be the lawful owner of the piece of land in dispute.

G Order accordingly.

1989 TLR p215

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[zRPz]JOHN KIRAKWE v IDDI SIKO 1989 TLR 215 (HC)

Court High Court of Tanzania- Mwanza

Judge Mwalusanya J

9 November, 1989

Flynote

Family Law - Kuria customary marriage - Marriage contracted by elopement -Whether it is a B legal marriage.

Family Law - Presumption of marriage - Elements.

Customary Law - Kuria customary marriage - Marriage by elopement - Whether a legal marriage. C

-Headnote

On 8/10/1986 the respondent's son eloped with the daughter of the appellant. On 23/8/1988 the appellant with some elders went to the respondent's home for negotiation D about the bride price payable. There was evidence that the respondent collected his own elders for the bargain. It was eventually agreed that the bride price payable be 12 head of cattle, two goats and cash shs.2,650/=. The respondent agreed to pay six head of cattle and cash shs.2,650/= on the spot as his first instalment. However he changed his mind later. The appellant successfully sued the respondent at Shirati Primary Court in Tarime District in a claim for payment of the agreed bride price. The Primary Court E found as a fact that the respondent's son had married the appellant's daughter and so the respondent was obliged to pay bride price as agreed.

On appeal, by the respondent, the District Court of Tarime held that there was no F marriage between the respondent's son and the appellant's daughter and so the question of payment of bride price did not arise. In addition, even if there was a marriage, no order for payment of bride price could issue as the parties had never agreed on the amount of bride price payable. The appellant appealed to the High Court. G

Held: (i) That under Kuria customary law marriages contracted by elopement are recognized;

(ii) the fact that the respondent's son and the appellant's daughter had lived H together for over two years as husband and wife raised the presumption of marriage which the respondent had failed to rebut;

(iii) to constitute a presumption of marriage three elements are necessary.

(a) that the parties have cohabited for over two years; I

1989 TLR p216

MWALUSANYA J

(b) that the parties have acquired the reputation of husband and wife; A

(c) that there was no formal marriage ceremony between said couple.

Case Information

Appeal allowed. B

[zJDz]Judgment

Mwalusanya, J.: The appellant John s/o Kirakwe successfully sued the respondent Idd s/o Siko at Shirati Primary Court in Tarime District in a claim of payment of brideprice C amounting to 12 head of cattle, two goats and cash shs.2,650/=. The trial court found as a fact that the respondent's son had married the appellant's daughter, and so the respondent was obliged to pay the brideprice that was earlier agreed upon by the two parties. the respondent appealed to Tarime District Court and was successful and hence D this appeal by the appellant.

The District Court of Tarime held that there was no marriage between the respondent's son and the appellant's daughter and so the question of payment of brideprice could not arise. And the learned District Magistrate further argued that even if there was marriage, E no order for payment of brideprice could issue from the Court as the parties had never agreed upon as to the amount of the payable brideprice.

In my judgment I find that the District Court was wrong on both points. Concerning as to whether the parties had agreed upon the amount of the brideprice payable, I find that the F trial court was right that the parties had on 23/8/1988 clinched a deal as to the amount of brideprice payable. Evidence was adduced at the trial that on that date, the appellant with some elders who included Mr. Francis s/o Kirakwi (PW.2), Shabani s/o Lukonge G (PW.3) and Juma s/o Kiraka (PW.4) went to the respondent's home for negotiations about the payable brideprice. It is said the respondent collected his own elders. It was eventually agreed that the payable brideprice would be 12 head of cattle, two goats and H cash shs.2,650/=. the agreement was put in writing and respondent agreed to pay six head of cattle and cash shs.2,650/= on the spot as his first instalment. However just after the deal was clinched, the respondent reneged and tore both copies of the written agreement and said that he was not ready to pay such meeting and agreement about the payable brideprice, though he agreed that his son had married the appellant's daughter. I

1989 TLR p217

MWALUSANYA J

On that evidence I am satisfied that there was an agreement between the two parties that A the payable brideprice would be 12 head of cattle, two goats and cash shs. 2,650/=. The appellant adduced cogent evidence at the trial which was backed up by not less than three witnesses. The

respondent cannot be allowed to repudiate an agreement that B he had made before a group of elders. The trial court was entitled to act on that evidence that the agreed brideprice payable was as agreed upon on 23/8/1988. Therefore the District Court was wrong to ignore such pertinent evidence to the matter in issue.

As regards the second issue that there was no marriage, again I find that the District C Court was wrong. First, at the trial respondent agreed that his son had married the appellant's daughter. What he said was that the payable brideprice of 12 head of cattle, 2 goats and cash shs.2,650/= was too much on the high side. He said that he was only prepared to pay four head of cattle and two goats as brideprice. Therefore the D contention by the respondent to the District Court that his son was not married to the appellant's daughter was an afterthought. The respondent cannot be allowed to blow hot and cold nor eat the cake and have it. Therefore I dismiss the contention by the respondent that his son was 15 years of age (under the minimum age of marriage) at the E time of marriage. If his son was under 18 years of age at the time of marriage, he should have raised such a point at the trial. We take that raising such a point at this stage is an afterthought intended to defeat a course of justice, and so it is dismissed with the contempt it deserves. F

It is not in dispute in this case that the marriage in this case was contracted under Kuria customary law and it was contracted by elopement. It was on 8/10/86 when the respondent's son eloped with the appellant's daughter. They are still cohabiting as husband and wife up to this day, some three years now. We are told that they have one G issue and the woman is now pregnant for the second child. It is said the husband works with Mugango Ginnery in Musoma district. That element can constitute marriage under Kuria customary law cannot be disputed. For example in the case of Bernard s/o Bayikafundi v Tamayamali s/o Mganidas [1970] H.C.D. n 11 (Said J.) this Court H held that elopement can constitute marriage under customary law. That is the position that obtains in this case. And so the respondent cannot be heard to say that there was no marriage in the circumstances.

I would further argue that there is a presumption of marriage in this case and that the respondent has failed to rebut it as stipulated I

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MWALUSANYA J

under s.160(1) of Law of Marriage Ace No. 5/1971. It is common ground that the two A parties in here have lived together for over two years and that they have acquired the reputation of husband and wife and that it has been proved that they were not married in fact but started to live together after an elopemnt. That is enough to constitute marriage - B see my judgment on this point in Mbeya (PC) Civil Appeal No. 50/1985 between Shija Nyangindu v Kashinje Salawi: (unreported). The other cases with the same view are Elizabeth Salwiba v Peter s/o Obara: n. 52 (by Nyalali, J. as he then was) C and Raphael Dibogo v Flabamis s/o Wambura: [1975] L.R.T. n. 42 (by Lugakingira, J.) The judgment of Mfalila, J. (as he then was) in Francis s/o Leo v Paschali Simon Maganga: [1978] L.R.T. n. 22 that insists that for a presumption of marriage to succeed it must be proved that the parties had gone through a ceremony of marriage recognised under the

law of Marriage Act, has been discredited; and it is no longer good law. The D only three important elements to constitute a presumption of marriage are:

(a) that the parties have cohabited for over two years;

(b) that the parties have acquired a reputation of being husband and wife; E

(c) that there was no formal marriage ceremony between the said couple.

In the case at hand, the appellant has been able to establish those three elements. And so F marriage has been proved between the respondent's son and the appellant's daughter.

In the event this appeal succeeds. I allow the appeal with costs. The judgment of the District Court is set aside, while that of the Primary Court is restored.

G Order accordingly.

1989 TLR p219

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[zRPz]FRANCIS ADOLF v IBRAHIM MUSTAFA 1989 TLR 219 (HC)

Court High Court of Tanzania- Bukoba

Judge Moshi J

20 November, 1989

Flynote

Contract - Customary contract - Between members of same tribe - Loan of Shs. 20,000/= - B Land pledged as security - Law applicable - Jurisdiction.

-Headnote

The respondent had in a written agreement pledged his shamba to secure a loan of shs.20,000/= from the appellant. The agreement was duly witnessed. On failure to repay C the loan the appellant sued seeking to realize the shamba.

The Primary Court which heard the case decided in favour of the appellant. On appeal by the respondent the District Court found that the Primary Court had no jurisdiction to D hear the case as provided by the Magistrate's Courts Act, 1984 because the loan of shs.

20,000/= exceeded its pecuniary jurisdiction.

The second appellate court considered what law was applicable and whether the Primary Court had jurisdiction to entertain the case. E

Held: The transaction between the parties was governed by customary law therefore the Primary Court had jurisdiction to hear the case based on customary law and not on the general principles of contract law. F

Case Information

Appeal allowed.

[zJDz]Judgment

Moshi, J.: The appellant, Francis Adolf, successfully sued the respondent, Ibrahim Mustafa, at Katoro Primary Court for a shamba worth Shs. 20,000/=. G

The respondent had, in a written agreement, pledged the shamba to secure a loan of shs.20,000/= from the appellant on 12/11/85. The agreement was witnessed by not less than four persons, as well as their ward CCM office. It had provided that the shamba H would become the property of the appellant if the loan was not paid by 30/5/86. By 30/5/86 the loan remained unpaid, and for several days thereafter, the whereabouts of the respondent was unknown. Hence the suit for the shamba filed on 24/6/86.

On the hearing day, the appellant and his witnesses were present in court, whereas the I respondent, who was duly served to

appear, failed, for unknown reasons, to enter an appearance in court. The trial court then A heard the appellant and his witnesses, and pronounced judgment in his favour.

Consequent upon a complaint made by the respondent at Bukoba District Court on 22/9/87, the District Court called the trial court record for inspection. In a revisional B order dated 17/11/87, the District Court found that the suit before the trial court ought to have been for the loan, and not for the shamba, and further that the Primary Court could not have had jurisdiction to try the case in view of the provisions of section 18(1)(a)(iii) C of the Magistrates' Courts Act 1984, since the loan of shs.20,000/= exceeded its pecuniary jurisdiction. The trial court proceedings were declared null and void, and the appellant was directed to file a suit for the loan, if still unpaid, before a court of competent jurisdiction. Hence this appeal.

While admitting the appeal my brother Munyera, J. minuted: D

DR

Admit to consider the jurisdiction of the trial court. What is a customary law transaction or a contract in general law? E

It seems to me, and I am certain Munyera, J. had this in mind, that the one issue on which this appeal must stand or fall is whether the transaction between the parties was a customary law one or one based on the general principles outlined in the Law of F Contract Ordinance. This question is vital in that in the event the transaction is found to have been a customary law one, the decision of the trial court, as against that of the District Court, would carry the day, and vice-versa.

With respect, I am satisfied that the transaction between the parties was a customary law G one. Georges, C.J. as he then was said in Mtatiro Mwita v Mwita Marianya [1968] HCD 82, that:

If persons of the same tribe enter into an agreement well known to the tribal custom under which the terms are prescribed, these persons must, in the absence of evidence to the H contrary, be understood to be contracting in accordance with these terms.

In our case, both parties are of Haya tribe. Under Haya law, a shamba may be pledged on condition that it will become the property of a creditor failing repayment of a debt on I an agreed date. The transaction had received the necessary publicity - the witnesses and

involvement of the CCM office. I have found no evidence to the contrary, and I am A satisfied, and hereby find, that the parties had transacted under their customary law dictates.
It is law that where money is loaned upon a pledge of property on condition that the property becomes the property of the pledgee if the loan is not repaid within a B prescribed time, the pledgee has a right to resort to the courts for the enforcement of the agreement by suing for the property on the basis of the agreement. This is exactly what the appellant had done, in the Primary Court. There was no evidence that the sum secured was much less than the value of the shamba, in which case the trial court would C have been empowered to order the sale of the shamba, instead of its transfer to the appellant, and the surrender back to the respondent the money in excess of the secured loan. In our case, we are told that the value of the shamba was equal to that of the sum loaned. For the foregoing reasons, and with respect, I am satisfied, and hereby find, that D the District Court erred in law in reversing the decision of the trial court, and in its finding that the trial court had acted without jurisdiction.
In the event, I allow the appeal with costs, quash and set aside the District Court judgment and its orders, and hereby restore in full the Primary Court decision. E
Appeal allowed.
1989 TLR p221
F
[zRPz]FANUEL JOSEPH MBEDULE v REPUBLIC 1989 TLR 221 (CA)

Court Court of Appeal of Tanzania- Mbeya
Judge Makame JJA, Omar JJA, and Mnzavas JJA

22 November, 1989 G
Flynote
Evidence - Accomplice evidence - Whether corroboration is always necessary for a conviction.
-Headnote
On 15/4/88, a refrigerator was stolen from Loleza Secondary School. After police H investigations the fridge was recovered in the house of Yahya Mazanda (PW.7). The appellant, who was believed to have stolen the fridge, was charged with the offence of stealing by public servant contrary to section 265 and 270 of the Penal Code. In his evidence Yahya (PW.7) said the fridge was sold to him by Mogan (PW.6). Mogan said I he bought the fridge from George (PW.5) who
1989 TLR p222
MAKAME JJA, OMAR JJA AND MNZAVAS JJA
got it from the appellant. In his defence, the appellant denied having stolen the fridge and A selling it to George (PW.5). The trial court found PW.5 and PW.6 to be truthful witnesses and found it as a fact that it was the appellant who sold the fridge to PW.5 having stolen it from a laboratory store at Loleza Secondary School. He was convicted B and sentenced to five years imprisonment. His appeal to the High Court was dismissed. He appealed further to the Court of

Appeal. His advocate challenged the decisions of the two lower courts on one main ground: that the courts convicted the appellant on the strength of uncorroborated evidence of PW.5 and PW.6 who were accomplices. C

Held: (i) The evidence of Range Ally (PW.4) sufficiently corroborated the evidence of George Ngela (PW.5) and Mogan Mwakapuji (PW.6) who were accomplices; D

(ii) under section 142 of the Tanzania Evidence Act a conviction is not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice.

Case Information

Appeal dismissed. E

Bateyunga, for the appellant

Kapinga, State Attorney, for the republic

[zJDz]Judgment

Makame, Omar and Mnzavas, JJ.A.: The appellant, Fanuel Joseph Mbedule, was, F in Mbeya District Court Criminal Case No. 145 of 1988, charged with and convicted of stealing by public servant contrary to sections 265 and 270 of the Penal Code and sentenced to 5 years imprisonment. He was aggrieved by the finding and sentence of the trial court and appealed to the High Court.

The High Court (Mroso, J.) after evaluating the evidence came to the conclusion that the G appeal had no merit and dismissed it in its entirety.

Still dissatisfied the appellant has appealed to this court.

Mr. Bateyunga, learned counsel for the appellant, argued before us that the first appellate court erred in finding that the evidence of George Ngela (PW.5) and Mogan H Mwakapuji, (PW.6), who were accomplices was corroborated by the testimony of Amosi Mwangalila (PW.8). It was the learned counsel's submission that Amosi Mwangalila was himself an accomplice who could not corroborate the evidence of other I accomplices.

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MAKAME JJA, OMAR JJA AND MNZAVAS JJA

Mr. Bateyunga also submitted that the evidence that a key which opened the laboratory A store from which a refrigerator was stolen was found in appellant's room was of no consequence as, it was argued, there was evidence that other workers in the school possessed keys which opened the store. It was finally the learned counsel's argument that it was quite possible that the key found in appellant's room had been planted there. B

Mr. Kapinga, learned State Attorney supported the conviction on the ground that the learned judge and the trial magistrate found that there was corroboration of the testimony of PW.5 and PW.6 by the evidence of Amosi, PW.8. The learned counsel also argued C that even if PW.8 was himself an accomplice the trial court believed him to be a credible witness and that as such his evidence did not need corroboration in view of the provisions of section 142 of the Evidence Act.

The facts in this case were simple and straight forward. On 15/4/88 a refrigerator was D stolen from Loleza Secondary School. The matter was reported to the police and a week later wheels of investigation led to the house of Yahya Mzanda, (PW.7), in which a fridge was found. The fridge

was later identified as the very one stolen from Loleza Secondary School. In his evidence Yahya, (PW.7), testified that the fridge was sold to E him by Mogan Mwakapuji (PW.6).
Mogan admitted in his evidence to have sold the fridge to Yahya. He also testified that the fridge was initially sold to his friend George Ngela, (PW.5), by the appellant and that F he helped his friend in carrying the fridge from Loleza Secondary School premises to George Ngela's kiosk. It was after the fridge was found to be unsuitable for George's kiosk that a decision was taken to sell it to Yahya.
In his defence the appellant totally denied having sold a fridge to George Ngela leave G alone stealing one from Loleza Secondary School.
The trial court found PW.5 and PW.6 to be truthful witnesses and found it as a fact that it was the appellant who sold the fridge to PW.5 having stolen it from a laboratory store H at Loleza Secondary School. This being a second appeal this court is not concerned with the trial court's finding of fact. We are only concerned with the arguments by the defence that PW.5 and PW.6 were accomplices whose evidence needed corroboration and that the courts below erred in acting on their evidence to the detriment of the appellant. I
With respect to the learned defence counsel we are also of the

view that PW.5 and PW.6 were accomplices whose evidence needed corroboration as A a matter of practice before being acted upon to the detriment of the appellant. But with even greater respect to the learned defence counsel we are also satisfied that there was sufficient corroboration evidence in support of the testimony of PW.5 and PW.6 B that it was the appellant who sold the stolen fridge to George (PW.5). This corroborative evidence is found in the testimony of Kange Ally, (PW.4), which was to the effect that the appellant had told him that he was selling a fridge and asked him to tell the owner of the kiosk, (PW.5), about it. Apparently Kange, (PW.4) was at the material C time selling soda in PW.5's kiosk. Later Kange told PW.5 what the appellant had told him. It is therefore amply clear that the only role played by Kange was that of reporting to PW.5 what the appellant had told him. That being the position Kange cannot, by any stretch of the imagination, be traded as an accomplice whose evidence needed corroboration. D
As it was held in the case of R. v Medcraft (23 Cr. Appl. R. 166) "evidence in corroboration of evidence of an accomplice need not be direct evidence, it is sufficient if it is circumstantial evidence connecting the accused with the offence." This decision was quoted and followed by the Court of Appeal for Eastern Africa in Rex v Gongolo s/o E Ibalwe [1937] E.A.C.A. 66.
Even if, for the sake of argument, there was no corroborative evidence of the testimony of PW.5 and PW.6 who were clearly accomplices section 142 of the Evidence Act says and we quote:

> An accomplice shall be a competent witness against an accused person; and a conviction is F not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice.

The upshot of this is that the trial court which apparently accepted the testimony of G PW.5 and PW.6 as credible would have been fully justified under section 142 of the Evidence Act to

convict the appellant of the offence charged even if there was no corroborative evidence in support of their testimony.
Apart from the evidence of PW.4 there was also the testimony of the watchman, H (PW.8), and that of the Headmistress, (PW.3), which tended to implicate the appellant with the offence.
We are therefore of the opinion that the concurrent findings of the lower courts was the only reasonable finding to which they could come and we accordingly dismiss this second appeal in its entirety. I
Order accordingly
1989 TLR p225
A
[zRPz]ANGELO BISIKI v ANTONIA BISIKI AND OTHERS 1989 TLR 225 (HC)

Court High Court of Tanzania- Bukoba
Judge Moshi J

27 November, 1989
Flynote
Customary Law - Haya - Succession - Inheritance of land by female - Female sells the B land with consent of clan members - Whether such sale valid.
Customary Law - Haya - Sale of clan land - Redemption - Whether buyer entitled to compensation for unexhausted improvements. C
-Headnote
The appellant was the brother of the first respondent. The first respondent inherited a clan shamba from her father. She then sold it to the 2nd respondent with the consent of clan members. The 2nd respondent later sold the shamba to the 3rd respondent again with the consent of clan members. The appellant sought to redeem the clan land. The D two lower courts found both sales valid. On appeal
Held: (i) The first respondent, being a Buhaya woman, could not have legally disposed of the land to any person, and in any manner, even with the consent of the clan - rule 20 E of the Local Customary Law (Declaration) No. 4 Order 1963 - GN.436 of 1963;

(ii) since the purported sale by the first respondent was void, no title in the land passed to the 2nd respondent who, thus, had no title to pass to the third respondent;

(iii) the third respondent, in all fairness, is entitled to be paid compensation in F respect of unexhausted improvements if any made by him during his reoccupation of the land under the authority of the courts below.
Case Information
Appeal allowed. G
[zJDz]Judgment

Moshi, J.: This was a claim for the redemption of clan land filed by the appellant, Angelo Bisiki, against the three respondents, Antonia d/o Bisiki, Leonsia d/o Cleophace and Elizeus s/o Tinilao, at Kashasha Primary Court. H

The material facts, very briefly, were that the appellant is the brother of the first respondent. They belong to the same clan, whereas the second and third respondents are strangers to that clan. The first respondent inherited the relevant clan shamba from her father. On 11/5/86 she sold it to the second respondent, with the consent of clan I members, for shs.140,000/=. And on 12/9/86 the second

respondent, for her part, sold the same shamba to the third respondent, again with the A consent of clan members, for shs. 300,000/=.

The Primary Court found both sales valid, and permitted the appellant to redeem the land upon payment to the third respondent the purchase money of shs. 300,000/=. The B District Court of Muleba, upon an appeal thereto by the appellant, upheld the decision of the Primary Court, and gave the appellant six months to pay the purchase money to the third respondent and redeem the shamba. The appellant still felt aggrieved, and hence this second appeal.

With respect, I am satisfied that both courts below erred in law by finding both sales C valid. They had both miserably missed the legal significance of the fact that the first respondent was a Buhaya woman in occupation of clan land. On the authority of rule 2 of the Local Customary Law (Declaration) No. 4 Order 1963 - GN 436 of 1963 - D the first respondent could not have legally disposed of the land to any person, and in any manner, even with the consent of the clan. The court of Appeal discussed at length the status of Buhaya females vis a vis clan land in Deocras Lutabana v Deus Kashaga (unreported) which is Civil Appeal No. 5 of 1981. E

The same question was also the central point for determination in the recent Court of Appeal decision in Rukuba Nteme v Bi Jalia Hassan and Gervas Baruti (unreported) which is Civil Appeal No. 19 of 1986. The golden thread that runs through these decisions of the Court of Appeal is that a Buhaya female heir, having inherited clan land, F has no more than a life interest in the land, which she could neither sell nor bequeath to any person whomsoever, even with the clan consent. That is the position in law regarding the status of Buhaya females vis a vis clan land.

It follows, therefore, that the first respondent was not entitled to sell the land in question G to the second respondent. In other words, that purported sale was null and void and did not pass any title to the second respondent. Equally null and void was the purported sale between the second respondent and the third respondent as there was no title to H pass. The position in law is that the question of the redemption of the land does not arise. The land is still legally in the hands of the first respondent for use during her lifetime. Of course she will have to refund the purchase price of shs.140,000/= to the second respondent, and it shall be for the third respondent to recover the purchase money of shs.300,000/= from the second respondent. The third respondent, in all fairness, is I entitled to be paid compensation in respect of unexhausted improvements, if any,

made by him during his occupation of the land under the authority of the courts below - A that is from the date of the Primary Court judgment to the date of this court's judgment. The exact amount is to be properly assessed by the trial Primary Court after it has received evidence of the improvements made to the land during that period. And it is fair and just that such compensation as determined by the Primary Court has to be paid B by the first respondent to the third respondent since she is the one who is bound to derive immediate benefit from the land which must be vacated by the third respondent without delay.

In the result, I allow the appeal, quash and set aside the decisions of both courts below, C and hereby declare that the transaction of sale by first respondent to second respondent, and by second respondent to third respondent were, and still are, invalid. The first respondent is ordered to refund the purchase price of shs.140,000/= to the second respondent who, in her turn, is ordered to refund the purchase price of D shs.300.000/= to the third respondent. The first respondent to pay to the third respondent compensation for unexhausted improvements, if any, to be determined by the trial Primary Court as stated earlier in this judgment. The appellant to have his costs in this court and the courts below. E

Order accordingly.

F

[zRPz]MOHAMED MSOMA v THE REPUBLIC 1989 TLR 227 (HC)

Court High Court of Tanzania- Dar Es Salaam

Judge Rugakingira J

27 November, 1989 G

Flynote

Evidence - Corroboration - Complainant an unreliable character -Desirability of corroborative evidence. H

-Headnote

The appellant was charged with and convicted of obtaining money by false pretences. The trial court convicted him on the basis of evidence given by the complainant, the only witness for the prosecution, which evidence was not corroborated. On appeal, the court found that the prosecution witness was an unreliable character and his evidence was I "shaky".

RUGAKINGIRA J

Held: (i) In law the evidence of one witness, if believed, is sufficient to found a A conviction;

(ii) when a witness is unreliable it becomes desirable, if not necessary, to look for corroboration;

(iii) there could be no corroboration in this case not because of the peculiar B setting but largely because the complainant himself actively removed that possibility.

Case Information
Appeal allowed.
Munisi, for the Republic C
[zJDz]Judgment
Lugakingira, J.: The appellant was convicted of obtaining money by false pretence c/s 302 of the Penal Code and was sentenced to three years' imprisonment. The charge D originally included two persons, the appellant appearing as accused No. 2, but the first accused was acquitted. It had been alleged that on 19th February, 1988 at Msasani Mikoroshini in Dar es Salaam, the two obtained 60,000/= from one Julius Mroso (the complainant) by falsely representing that they could multiply the money. E
The story of the case is a typical example of what has come to be known as utapeli. This term, I understand, encompasses all forms of trickery and artifice perpetrated for gain. The complainant was a welder based at Temeke in Dar es Salaam. His business was not doing well and he was having problems with his health. The first accused was his F business neighbour as well as a friend. The latter advised the complainant to see an expert for treatment and cleansing; indeed he introduced the complainant to the appellant as such expert.
It seems that this took place at the beginning of l981. I said it seems because the evidence is far from clear or consistent. Making the best of the situation, the complainant G appears to say that on being introduced to the appellant the latter proposed that they meet in the evening at a graveyard in Msasani. They met there just after 7 pm. It was dark. The appellant then burnt incense. In a moment the complainant heard voices, supposedly voices of the dead. He was terrified and impressed. They were then at a H tomb and the appellant declared that the complainant's business and health problems had been diagnosed. He advised the complainant to return for another session after a week. The complainant went back after two weeks apparently in the company of both I accused. It is not clear whether he got another 'treatment' but we are at least told that

he was now asked whether he had money for the treatment. He did not have any and A was advised to find it or furnish two guarantors.
After some time the complainant sold a vehicle for 80,000/= and the appellant got to know the deal. My difficulties with the evidence may be this bit as to what followed. B

Mohamed came at home and found me and on the same day met at the city centre and that my lucky star has been found and I was called to the place and he gave me the letter Nyota yake imekwisha onekana. I went again for fear of spirits at Msasani and that now things could C go well since I have money which must multiply. I was solicited into taking the money for luckiness - zisafishwe ili zizae.

The passage suggests that the appellant intensified his representations when he became D aware of the complainant's financial standing. The complainant claimed to have taken 60,000/- and to have been accompanied by his young brother one Teophan Msoro. At the graveyard he gave the money to the appellant who laid it on a tomb. The appellant then asked the

complainant to bring incense and perfumes for cleansing the money. E When he delivered these articles the following day he was told that the process would take a week. In two days it dawned on the complainant that he had been swindled. He demanded back his money but the appellant told him it was with the spirits. Indeed the F appellant was said to have extracted another 300/= from the complainant as a fee to talk to the spirits. In the end the complainant reported the matter to the police.

The appellant did not testify, electing to absent himself after the close of the prosecution case, nor did his counsel appear. That did not deter the trial court which proceeded to convict the appellant as aforesaid. The same counsel engaged by the appellant at the trial G drew and filed the petition of appeal but did not appear at the hearing. Suffice it to say that the petition consisted of three grounds, namely, that the appellant was not given an opportunity to defend himself, that the prosecution had not established its case beyond reasonable doubt, and that the evidence was shaky and called for corroboration. H

I think the complaint in the first ground is not justified. The record of the trial court leaves not doubt that the appellant was given the opportunity to defend himself but did not take it up, electing to absent himself on the appointed day. In the circumstances the trial court was justified in proceeding to pronounce judgment without hearing the appellant. The I procedure was fully authorised by the

provisions of s.227 of the Criminal Procedure Act and the circumstances justified A recourse thereto. To that extent, therefore, I am unable to say that the trial court erred. I will next consider the third ground, the second ground being dependent on this.

I must confess that in the circumstances of this case the third ground assumes peculiar B significance. Perhaps I should start by pointing out that the complainant was the only witness for the prosecution. Mr. Kyuki, learned State Attorney, rightly submitted that in law the evidence of one witness, if believed, is sufficient to found a conviction. I also C agree with him that there is no necessity for corroboration for every witness. But is follows by implication that there may arise a situation where corroboration is desirable even if not necessary. I have unfortunately come to the view that this was a case where corroboration was desirable and I will demonstrate why. D

First of all, it is true that the evidence of the complainant was "shaky" as charged in the petition of appeal. The record testifies to the complainant's difficulties to make out a story although he was testifying some three months or less after the alleged events. He contradicted himself here and there, clumsily hopped from this to that fact, as if not E seized of the facts of his own experience. Above all it came out in cross-examination that he did not even know when, if at all, he parted with the money. His very words are again revealing. F

> I do not remember exactly when he took my money. I am not mistaken it was Saturday. It was April l (am) not sure 1988 ... Days has passed, I have forgotten. It is a long time since my money was stolen. It is February 1988, it is not April. G

This cross-examination took place in June 1988, but this was a "long time" from February or April, 1988 according to the complainant. How, when was the money taken - February or April, 1988? Could it in fact have been earlier than 1988 since the complainant was not even sure of the year? It must be obvious from all this that the H complainant was such an unreliable character that he could only attract anxiety rather than confidence. It is precisely when a witness is unreliable that it becomes desirable if not necessary to look for corroboration. That situation did arise here. I do not wish to venture into the superstitious grounding of the alleged transaction: the belief in and I practice of witchcraft; yet it is also tempting to ask whether a person who believes in the ability of

'talking tombs', rather than diligent work, to multiply his fortunes has that degree of A rationality which can commend itself to the confidence of a court of law.

When we turn to look for corroboration, it is wholly absent. Mr. Kyuki again observed that the setting of the alleged transaction - a graveyard, on a dark night - excluded the B possibility of corroboration. I am not so certain. It seems to me that the setting notwithstanding corroboration could have been obtained in this case but for the acts and omissions of the complainant himself. As seen earlier the complainant is supposed to have left for the rendezvous in the company of his young brother, Teophan Msoro. One C would have expected Teophan to witness the transaction, but he was not to.

The extent to which the complainant could be tantalising even in this regard is again underscored by his own words. D

> Money was in a bundle. He did not count, the accused No. 2. But I told him that it was 60,000/=. When I told him that it was 60,000/= Teophan heard. I went with him but left him behind. When I handed the money he was not there, but when I left home with shs.60,000/- my E brother accompanied him (sic). Besides me, no one else will testify to the effect.

In short there could be no corroboration in this case not because of the peculiar setting but largely because the complainant himself actively removed the possibility of it. F Alternatively, and most probably, he lied about the whole thing. He could not take his brother all the way to the graveyard only to discard him when his actual encounter with the witch and the passing of the money. It all goes to show how dangerous it was to rely on the complainant's bare word. I have therefore insufficient evidence to establish that G the appellant obtained 60,000/= or any amount from the complainant.

That, in my view, is sufficient to dispose of the appeal but there is one more aspect of the case which must be addressed. The inconsistency of the complainant makes it difficult to determine the purpose of the money, if any money was passed. At one time we are given H to understand that he was required to find money to pay for his treatment and even to furnish guarantors if he could not do so immediately. But when money is finally found it is not paid for the treatment but is now solicited for multiplication. For one thing, this inconsistency is yet another illustration of the extent to which the complainant could be I unreliable. But there is another

RUGAKINGIRA J

aspect to it. There is a vast difference in law between obtaining money as a fee for a A purported treatment and obtaining the same for the purpose of multiplying it for the giver. In the former case the recipient obtains not only possession but also ownership of the money; in the latter possession only but not ownership is obtained, it being understood B that the money would be restored and possibly in a double state. An offence of obtaining money by false pretences under s. 302 of the Penal Code is not committed in possession only but also ownership if obtained in the money: see Omari v R. [1964] E.A. 162 and the English decisions cited therein. Where possession only is obtained the accused can C only be convicted of theft. In the instant case, is there were reliable evidence to establish that money passed, the appellant could properly have been convicted of theft. But as I have said, there was no such evidence so, that the conviction even for the offence charged cannot be sustained.

For these reasons, I allow the appeal, quash the conviction and sentence and order the D appellant's release from custody.

E Appeal allowed.

1988

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2. The Hon. Mr. Justice Dahoma Puisne Judge

Cases Reported
1988 TLR p1
A
[zRPz]SMALL SIMBA SPORTS CLUB v MIEMBENI SPORTS CLUB 1988 TLR 1 (CA)

Court Court of Appeal of Tanzania - Zanzibar
Judge Makame JJA, Kisanga JJA and Omar JJA

6th January, 1988 B
Flynote
Administrative Law - Jurisdiction - Members of Zanzibar Sports Council whose tenure had lapsed - Whether competent to make effective decisions.
Civil Practice and Procedure - Procedure in High Court of Zanzibar - Party proceeded by C chamber summons - Whether permissible.
-Headnote
Appellants, Small Simba Sports Club, were alleged to have illegally fielded a player in a match against the respondents, Miembeni Sports Club. The respondents filed a complaint with the Zanzibar Football Association (ZFA) which declared the respondents winners D . Aggrieved, appellants appealed to the Zanzibar Sports Council (ZSC) which reversed the decision by ZFA. Undaunted, respondents appealed to the High Court of Zanzibar which quashed the decision on the ground that when ZSC purported to make its E decision, ZSC itself was non-existent. Counsel for appellants argued, on appeal to the Court of Appeal of Tanzania, inter alia, that the matter was not properly before the High Court for adjudication as respondents should have sought to have the matter removed into the High Court by way of originating summons and obtain leave to apply for an order of certiorari. They should not have gone to the High Court by way of chamber F summons.
Held: (i) Under s. 3(1) of the High Court Act, 1985, the High Court of Zanzibar has unlimited jurisdiction and hence can entertain cases brought to it by using various G procedures at the disposal of the parties.

(ii) ZSC members, their tenure having come to an end, had no jurisdiction to determine the dispute, hence their decision was null and void. H

(iii) there can be no appeal directly from ZFA to the High Court since such appeal lies to a properly constituted ZSC.
Case Information
Appeal dismissed. I

1988 TLR p2
MAKAME JJA, KISANGA JJA AND OMAR JJA
A Case referred to:
1. Hemedi Marijani v Festo Ngowi [1975] LRT n. 66.
[zJDz]Judgment
Makame, Kisanga and Omar, JJ.A.: This eventful appeal is about football. Public B interest in it was conspicuously evident and the urgency with which the appeal had to be disposed of was impressed upon us in court. It was heard during the court vacation and when two members of the court were on their annual leave.
The parties are two sports clubs in Zanzibar. For facility of brevity they will hereinafter be C referred to simply as Small Simba and Miembeni, respectively. During the 1987 League Football season in Zanzibar they were matched against each other twice, in accordance with the rules. The first match was won by Miembeni and this was on 11th April 1987. On 23rd June 1987 when the two teams clashed again the tables were turned. Small Simba won that match and Miembeni filed a complaint with Zanzibar Football D Association, hereinafter referred to as Z.F.A., the body charged with the duty of superintending the game of football in Zanzibar. Among other things, Miembeni alleged that Small Simba had illegally fielded a player called Shaaban Mussa whom they had E acquired from Simba Football Club in Dar es Salaam without complying with the necessary transfer formalities obtaining in Zanzibar. ZFA found substance in the allegation and therefore declared Miembeni the winners of that controverted match. In turn Small Simba, being dissatisfied with that decision, appealed to the Zanzibar Sports Council, F also known as Baraza la Michezo Zanzibar, or BMZ for short, created by the Zanzibar Sports Council Act, Act No. 8 of 1983. BMZ reversed the decision made by ZFA and declared Small Simba, who had won the match on the field, the winners of that game. The present appeal before us is by Small Simba, now from the decision of the High G Court of Zanzibar, wherein Ramadhani C.J., on appeal by Miembeni, quashed the decision by BMZ, making a number of findings, one of them being that at the material time when the BMZ decision was purportedly made, the said BMZ was itself non-existent. This seems to us the crux of the matter.
H Before us Small Simba were represented by Mr. Maira, learned advocate, while Miembeni were advocated for by Mr. Muccadam, learned counsel. Both learned advocates fervently and strenously argued the appeal and we are thankful to them for their useful assistance. We wish also to place on record our grateful thanks to both I Counsel for putting at our disposal the various documents they deemed useful for our consideration.
1988 TLR p3
MAKAME JJA, KISANGA JJA AND OMAR JJA
Mr. Maira for the appellants advanced five grounds against the learned Chief Justice's A decision and these may be grouped into three:
1. That the matter was not properly before the High Court for adjudication as it was not preceeded by certain formalities of procedure. B
We incidentally note here, with satisfaction, that learned Counsel did not pursue the stand adopted by BMZ in the High Court that in any event the C High Court was devoid of

power to hear the matter because it was provided that BMZ decisions are final. The learned Chief Justice correctly construed Regulation 17 of GN 155 of 1985 to mean that such decisions can only be final within certain limits and limitations, beyond which the High Court's D power to enquire into such decisions is not ousted.

2. That the learned Chief Justice applied inappropriate Football Regulations and was wrong to sustain the ZFA decision, and

3. That the learned Chief Justice should have directed that the matter be heard by a properly constituted BMZ. E

For the purpose of determining this appeal we think there was a good deal of chaff from which we must separate the grain. The two really relevant and important issues we have to consider and decide upon are whether the matter was properly before the High Court, in terms of procedure that is, as already indicated; and secondly, whether or not we can F sustain the learned Chief Justice's holding that "Hivyo ninakubaliana kabisa na uamuzi wa Z.F.A. na nitatofautiana na ule wa Baraza AMBALO KWA KWELI HALIKUWA LA HALALI." (Capital Letters employed for the sake of emphasis). G

Mr. Muccadam urged that the procedure adopted to reach the High Court was quite proper in the circumstances and further submitted that the learned Chief Justice's finding that there was not in existence a BMZ to which Small Simba could have appealed was quite justified. H

According to Mr. Maira the respondents should have sought to have the matter removed into the High Court by way of originating summons and obtain leave to apply for an order of certiorari: They should not have come by way of Chamber Summons and proceeded the way they did. During the learned exchanges in court, however, Mr. Maira conceded I that certiorari was not the only remedy in such

A a situation. Instead of obtaining leave to apply for that order a party could reach High Court, for example by way of review or by way of a suit. Under section 3(1) of the High Court Act, 1985, the High Court of Zanzibar has unlimited jurisdiction and we do not agree with Mr. Maira's suggestion that Miembeni could only have gone there by way of B originating summons. This was in effect a suit brought in substantial compliance with the Civil Procedure Decree.

On the second vital issue the learned Chief Justice had this to say:

C Ni dhahiri kwangu pia kuwa muda wa miaka miwili wa hawa wajumbe umekwisha. Kwa niaba ya Miembeni imeelezewa kuwa Baraza lilianza kazi tarehe 1 Julai 1984. Tarehe hiyo haikukanushwa kwa niaba ya Baraza na wala haikutolewa tarehe yeyote. Hivyo nachukulia D kuwa tarehe ni hiyo ya Julai 1, 1984.

Computing two years from July 1, 1984 we find that the life span of the BMZ ended on 30th June, 1986. The purported BMZ decision was made on 28th July 1987. We do not E wish to spend argument on the position of ex officio members in the BMZ, how many of these were on the Executive Committee which made the purported BMZ decision etc., because these matters would be relevant only if we were satisfied that there was at the material time a BMZ in

existence. The evidence available establishes that the learned Chief Justice was correct in holding that BMZ was non-existent at the material time. If F there was any doubt over this, and we are satisfied there was none, it was removed by a Government Press Release made available one day after the High Court judgment was delivered. The High Court judgment was delivered on 19/8/87, the Press Release was on the morrow. According to the Press Release, a now BMZ was consituted on that day, G 19/8/87, to take over from the previous one which had lapsed the previous February 12th, that is 12/2/87. So that even by this reckoning there was now BMZ in existence when the purported BMZ decision was made on 28th July, 1987. If, as Mr. Maira says, H the old BMZ was filling a vacuum before the new appointment, we only wish to say that however well-meaning they might have been they were incapax, they simply had no authority to stand in for an institution which had ceased to exist. Mr. Maira conceeded that to extend the life span of BMZ is not one of the powers conferred on the Minister I responsible for Sports and, in any event, the Minister did not pretend to have such powers. As

there was no BMZ in existence, Mr. Maira cannot rely on the authority of Hemedi A Marijani v Festo Ngowi [1975] LRT No. 66 for the proposition that Ramadhani Chief Justice should have remitted the matter back to a properly constituted BMZ. There was none in existence at the material time and the learned Chief Justice had of course no B powers to order the formation of a BMZ. It would have been futile for the High Court to make orders it had no power to follow up. In Marijani v Ngowi there was already the Rent Tribunal in existence.

The position is now therefore that because there was no BMZ in existence at the material C time there was no BMZ decision. The so-called BMZ decision upsetting the ZFA decision declaring Miembeni the winners is therefore null and void. The ZFA decision therefore stands. There can be no appeal directly from ZFA to the High Court. Appeal from a ZFA decision lies to a properly constituted BMZ. D

This appeal by Small Simba is without merit and is hereby dismissed with costs.

By way of postscript and hopefully without stepping on anybody's toes, we wish to associate ourselves with the suggestion made by the learned Chief Justice that BMZ E would do well to avail itself of legal guidance. We wish to add that we were practically bewildered by the labyrinth of almost perennial crops of Regulations and Addenda issuing from ZFA which is an institution under BMZ.

Appeal dismissed. F

G

[zRPz]REPUBLIC v GREGORY RUHEZA 1988 TLR 5 (HC)

Court High Court of Tanzania - Mtwara
Judge Rubama J

7th January, 1988 H

Flynote

Criminal Practice and Procedure - Bail - Surety for accused person - Accused travels to Dar es Salaam to look for an advocate -Fails to appear due to lack of transport - Surety ordered I to pay expenses incurred by witnesses and forfeit bond - Whether proper.

1988 TLR p6

RUBAMA J

-Headnote

A Gregory Ruheza had stood surety in the sum of Shs. 50,000/= for Joseph Mapema. The accused failed to appear in court and his wife informed the Court that he had travelled to Dar es Salaam in search of a lawyer to defend him but missed a return flight to Mtwara. Gregory Ruheza was summoned and ordered to pay the expenses of Shs. B 375/= for a witness from Bukoba and Shs. 240/= for a witness from Masasi or surety was to forfeit his bail bond.

On 19th June, 1980 the accused was not in court and the trial magistrate was informed by the surety the reasons for the absence of the accused namely the flight from Dar es Salaam to Mtwara had been cancelled. Court ordered forfeiture of surety's bond of Shs. C 50,000/=. Surety could not raise Shs. 50,000/= as a result was committed to prison. He appealed against the order.

Held: (i) The trial magistrate's ruling is not a fair reflection of the facts for it is clear that D the absence of the accused had been caused by circumstances beyond his control;

(ii) at the time of the hearing there was no advocate resident in Mtwara, the accused trip to Dar es Salaam could not be viewed as an attempt of the accused to jump bail. In the circumstances, asking the surety to forfeit Shs. 50,000/= bail bond was not E justified;

(iii) not justified also was the order that the surety pay Shs. 375/= for a witness from Bukoba and Shs. 240/= for a witness from Masasi;

F (iv) it is out of order for the court to order the surety to pay more than Shs. 50,000/=, the sum he had undertaken to pay when signing the bail bond.

Case Information

Order accordingly.

[zJDz]Judgment

G Rubama, J.: Gregory Ruheza had stood surety in the sum of shs. 50,000/= for Joseph Mapema who had been accused of several offences under the Penal Code. On 16th June, 1980 Joseph Mapema, the accused, was not in court and his wife informed the court that her husband had gone to Dar es Salaam in search of a lawyer to defend him but had unfortunately missed a return flight to Dar es Salaam. The case was H adjourned to the next day the 17th June, 1980 when it was again adjourned to 19th June, 1980. Gregory Ruheza the accused's surety who had been summoned informed the court that he had been in contact with the accused, Joseph Mapema who had promised I to return to Mtwara as soon as possible. He further assured the court that he was in the process of arranging an air

1988 TLR p7

RUBAMA J

ticket for the accused to come to Mtwara from Dar es Salaam. With this explanantion A the trial court made the following order:

The surety is ordered to pay the expenses of Shs. 375/= for a witness from Bukoba and Shs. 240/= for a witness from Masasi, or surety to forfeit his bail bond, whichever is less. Hearing adjourned to 19/6/80. B

On the 19th June, 1980 the accused was not in court and the trial magistrate was informed by the surety the reasons for the absence of the accused namely the flight from Dar es Salaam to Mtwara had been cancelled. The response to this information by the C court is as detailed below:

This case was to be heard on 16/6/80 and witnesses have come from Bukoba and Dar es Salaam, only to find what the accused is no where to be seen. D

The surety signed a bond of shs. 50,000/= to be forfeited in case the accused fails to turn up. Consequently, therefore, the surety now forfeits this bond of Shs. 50,000/= after he has failed to produce the accused person. E

Order: Mention on 3/7/80.

The surety is to forfeit his bail bond of Shs. 50,000/= or six (6) months imprisonment in default. F

The surety appears to have failed to pay Shs. 50,000/= bond and was committed to prison. He has appealed against the court order and is fortunately on bail pending determination of this appeal. To gain speed, I decided to deal with the subject exercising G my revisional jurisdiction. It has not apparently been easy to serve the appellant to appear in court.

Having gone through the record, I see no justification for the above mentioned order made by the trial magistrate. The trial magistrate's ruling is not a fair reflection of the facts H for it is clear that the absence of the accused had been caused by circumstances beyond his control; neither the accused nor the surety could have done anything about it. At the time of the hearing of this case there was no advocate living in Mtwara; the accused's travel to Dar es Salaam in search of an advocate could therefore not be I viewed in the light of an attempt by the accused to jump bail. The accused had

A every right to go in search of an advocate of his choice. His failure to return to Mtwara in good time was forced on him by unavailability of air transport from Dar es Salaam to Mtwara. He could do nothing about that situation and court was not put in darkness regarding that aspect. The heavy dependence on air transport to this town especially during the time when the case was for hearing could not have been a disputable fact. In B the circumstances asking the surety to forfeit Shs. 50,000/= bail bond was not justified. Not justified also was the order made on the 17th June, 1980 that the surety pay Shs. 375/- for a withness from Bukoba and shs. 240/= for a witness from Masasi.

C When this order is considered together with that made on the 19th June, 1980, it is clear that the court had ordered the surety to pay more than shs. 50,000/= a sum that he the surety had undertaken to pay when signing the bail bond. This is obviously out of order.

D For the various reasons detailed above the forfeiture order of Shs. 50,000/= bail bond made in respect of surety as well as payment of expenses in respect of witnesses from Bukoba and Masasi are hereby set aside. The surety is discharged.

E Order accordingly.
1988 TLR p8
F
[zRPz]FATEBALI MURJI v H.P BHANJI 1988 TLR 8 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Sekule J

11th January, 1988
Flynote
G Civil Practice and Procedure - Jurisdiction - Rent Restriction Area - S. 126 (h) of the Rent Restriction Act, 1985.
-Headnote
The respondent was occupying a flat on a plot situated along Uhuru/Swahili street in Dar H es Salaam as a legal tenant of the Registrar of Buildings. Before going abroad he left the suit premises with the applicant on the understanding that the applicant would vacate and hand over said premises to the respondent upon his return to Dar es Salaam. At about the same time a company, by which the applicant was employed, made arrangements with the respondent to allow the use of the premises by the company to house the I applicant. This arrangement was approved by the Registrar of Buildings and rent
1988 TLR p9
SEKULE J
was ever since paid by the company to the Registrar of Buildings. Respondent came A back and demanded recovery of the premises but the same was refused, whereupon the respondent filed a suit in the Resident Magistrate Court praying, inter alia, for vacant possession. Before hearing of the suit, counsel for the applicant raised a preliminary B objection claiming that the Resident Magistrates Court had no jurisdiction to entertain the suit. The trial Magistrate held that the cause of action was trespass and that there was no landlord and tenant relationship, and further that the case did not fall within the purview of the Rent Resistriction Act, 1985. C
Held: (i) Since the suit involves the determination of the status of the parties in the suit premises, it was erroneous to file it in the Resident Magistrates Court because it was a matter which could only be determined by the Regional Housing Tribunal under the provisions of the Rent Restriction Act. 1984. D
Case Information
Order accordingly.
Cases referred to:

1. Valji Keshav Oza v C.P. Jani and Sons [1957] EA 184. E
2. Gangabai Harji v Bhoja Kashav [1957] EA 304.
3. Suleman Ibrahim v Awadhi Saidi [1963] EA 179.
4. Kitundu Sisal Estate & Others. v Shingo Mshuti [1970] HCD n. 229

[zJDz]Judgment

Sekule, J.: The applicant Fatehali Murji is applying to this court under section 44 of the F Magistrates' Court Act, 1984 and/or section 79 and section 95 of the Civil Procedure Code for revision of the ruling of the Resident Magistrate at Kisutu in Civil Case No. 44 of 1987.

The background of the case as can be gathered from the documents filed by the parties is G that the respondent in the application one H.P. Banji was or is a legal tenant of a flat on Plot No. 4-27 United House, Uhuru/Swahili Street Dar es Salaam hereinafter to be referred to as the suit premises since 1965. He became a tenant of the Registrar of H Buildings after the coming into force of the Acquisition of Building Act, 1971 in 1971.

Sometime in November, 1984 the respondent left for Canada and left the suit premises with the applicant with the understanding that, the applicant would vacate and handover the said suit premises to him upon his return to Dar es Salaam. I

1988 TLR p10

SEKULE J

A On the other hand the applicant contends that he is an employee of Messrs Chemi Products Ltd. This is a limited liability Company incorporated in Mainland Tanzania. Sometime in 1984 his employer, that is Chemi Products Ltd. made arrangements with the respondent who was then living in Canada for him as a member of staff of the said Chemi B Products Ltd. to use and occupy the suit premises. Before that correspondences had been exchanged between his employer and the Registrar of Buildings as well as with the respondent. These correspondences were attached to the affidavit of the applicant and collectively marked as Exhibit A.

C The essence of these correspondences is that the respondent allowed or gave partial use of his flat to Chemi Products Ltd. to house their staff. The arrangement was approved or authorised by the Registrar of Buildings.

The applicant further contends that he has been residing in that flat for about 21/2 years D now and that his employers are paying rent directly to the Registrar of Buildings.

Be that as it may, the respondent returned to Tanzania in or about January, 1987 and asked the applicant to vacate and handover the suit premises to him by June, 1987. The E applicant failed or refused to do so despite the respondent's demands. As a result the respondent filed a suit in the Resident Magistrates Court of Dar es Salaam at Kisutu seeking the following:

1. An order that the applicant be moved out and hand over immediate F possession of the suit premises to the respondent.
2. Damages.
3. Costs.
4. Such further reliefs as the court may deem fit.

G It was also contended by the respondent that as from June, 1987, the applicant was a trespasser in the suit premises.

Before the hearing of the suit in the Resident Magistrate Court, Mr. Majithia learned H counsel who represented the applicant in the Resident Magistrates Court as well as in the application before this court, raised a preliminary objection to the effect that the Resident Magistrate Court

had no jurisdiction to entertain the suit by virtue of section 12(1) of the Rent Restriction Act, 1985. He contended that the case was within the purview of the I Rent Restriction Act 1985.
On the other hand Mr. Muccadam learned counsel for the
1988 TLR p11
SEKULE J
respondent in the Resident Magistrates Court and before this Court, contended that as A the suit was based on trespass and there was no landlord and tenant relationship the Resident Magistrate Court had jurisdiction to hear and determine the suit. The applicant was only an invitee and the respondent having come back he had the right to re-occupy the suit premises. B
The Resident Magistrate Court, after considering learned counsels' submissions found and held that the cause of action was trespass and that there was no landlord and tenant relationship. The case was therefore not within the purview of the Rent Restriction Act, 1985. The applicant was therefore ordered to file his written statement of defence within C three weeks from the date of the court's ruling to enable the suit to proceed in the Resident Magistrate Court.
Mr. Majithia learned counsel for the applicant contends that this ruling was not correct in law and hence this application before this court. D
Like in the Resident Magistrates Court, Mr. Majithia learned counsel has submitted before the court that the Resident Magistrate Court has no jurisdiction to entertain this suit. The case is within the competence of the Regional Housing Tribunal. It was his E submission that the Rent Restriction Act, 1985 applies to all dwelling houses and the suit filed was for possession of a dwelling house. He made reference to sections 2, 12(1)(h), 25 and 46 of the Rent Restriction Act, and he cited a number of authorities, namely, Valji Keshav Oza v C.P. Jani and Sons [1957] E.A. 184, Gangabai Harji v Bhoja Keshav [1957] EA 304, Suleman Ibrahim v Awadhi Said [1963] E.A. 179 and F Kitundu Sisal Estate and others v Shingo Mshuti [1970] HCD page 229 inter alia as can be seen in his list of authorities filed in this file.
On the other hand Mr. Muccadam learned counsel for the respondent submitted that G respondent left the house to the applicant and that when he came back and wanted the suit premises back, the applicant has failed and refused to move out. He is a trespasser. He further submitted that protection is given to tenants and that where there is no tenant and land lord relation-ship the Rent Restriction Act, 1985 does not apply. The matter H was therefore within the competence of the Resident Magistrate's Court.
I have considered this matter. Without going into the merits of the case which will be examined and considered by the relevant organ in the course of the hearing of this matter; and after carefully considering the facts as disclosed in the affidavits and counter affidavit I filed by the parties and the correspondences exchanged,
1988 TLR p12
SEKULE J
A (Exhibit A) before the applicant moved into the suit premises, I am of the view this dispute falls within the provisions of the Rent Restriction Act, 1985.
The applicant appears to have moved into the suit premises with the approval and B permision of the respondent and the Registrar of Buildings the land lord in as far as the suit premises are

concerned. In these circumstances therefore one of the possible issues that could arise for consideration is that what was or is the applicant's status if any in the suit premises. Is he a sub-tenant in terms of sections 36 and 37 of the Rent Restriction C Act, 1985 or/and what rights if any does he have in the suit premises.

These in my view are matters within the purview of the provisions of the Rent Restriction Act, 1985 and the competence of the Regional Housing Tribunal to inquire, consider and determine. With respect, it does not appear in my opinion to be a case of trespass per se D as contendent by Mr. Muccadam, learned counsel for the respondent.

Further, since the applicant is at the material time in occupation of the suit premises, the Regional Housing Tribunal has jurisdiction to deal with this dispute in terms of section E 12(1)(h) of the Rent Restriction Act, 1985. There is no dispute that Dar es Salaam is a rent restriction area. Section 12(1) reads:

The tribunal shall, in relation to every rent restriction area within its jurisdiction, have power to do all things which it is required or empowered to do by or under the provisions of this Act and F without prejudice to the generality of the foregoing shall have power:

(h) to make orders upon such terms and conditions as it shall think fit for the recovery of G possession and for the payment of arrears of rent and means profit which orders may be applicable to any person, whether or not he is a tenant, being at any material time in occupation of any premises.

H For the reasons outlined hereinabove. I am of the view and do hold that the Resident Magistrate Court did not have jurisdiction to entertain this case. The suit is within the competence of the Regional Housing Tribunal.

I In the exercise of the powers under section 44(b) of the Magistrates Courts Act, 1984, I would and do hereby quash the ruling of the Resident Magistrates Court.

1988 TLR p13

It is further ordered that the suit be transferred to the Regional Housing Tribunal for A inquiry and determination.

Order accordingly.

1988 TLR p13

B

[zRPz]REPUBLIC v NAFTARI NG'UMBI 1988 TLR 13 (HC)

Court High Court of Tanzania - Mbeya

Judge Mroso J

29th January, 1988 C

Flynote

Criminal Practice and Procedure - Jurisdiction - Accused duly convicted and sentenced to 12 years imprisonment by Court of Resident Magistrate - Whether s.170(2) of Criminal D Procedure Act, 1985 confers sentencing powers of High Court on Resident Magistrates.

-Headnote

Accused was prosecuted in the Court of Resident Magistrate for stealing five head of E cattle valued at shillings 50,000/=. He was duly convicted and sentenced to 12 years imprisonment by a Senior Resident Magistrate. The case was called on revision and the issue was whether the import of the saving to s.170(2) of the Criminal Procedure Act, 1985 is to confer on a Magistrate of or above the rank of Senior Resident Magistrate F sentencing powers of the High Court.

Held: (i) A subordinate court (unless it has extended jurisdiction under s.173 of the Criminal Procedure Act, 1985) whether held by District Magistrate or Resident Magistrate of whatever grade or rank does not enjoy sentencing powers of the High G Court.

(ii) The word "section" in the proviso to s.170(2) of the Criminal Procedure Act was a drafting inadvertence. The correct word Intended by the legislature is "Sub-section", the saving, therefore, applies to s.170(2) but not to the whole section. H

Case Information

Sentence quashed.

Cases referred to:

1. Yusuf s/o Issa vR. [1970] HCD n. 275. I

1988 TLR p14

MROSO J

[zJDz]Judgment

A Mroso, J.: The accused was prosecuted in the Court of Resident Magistrate, Iringa for stealing five head of cattle valued at shillings 50,000/=. That being an economic crime offence it was made triable by that court upon a certificate of the Principal State Attorney, under section 12(3) of the Economic and Organized Crime Control Act, 1984. B The accused was duly convicted and was sentenced to 12 years imprisonment by Mr. Kajeri, Senior Resident Magistrate. He does not appear to have filed any appeal. During routine examination of the returns from the Court of Resident Magistrate, Iringa the record in respect of this case was called for inspection. Upon inspection it was ordered C that a revision record be opened, to consider whether the learned Senior Resident Magistrate was competent to award the sentence of twelve years imprisonment on the accused.

D During the revision proceedings Mr. Lundu, learned state attorney, submitted that the learned senior resident magistrate was empowered by section 170 of the Criminal Procedure Act, 1985 to impose that sentence, because it is provided in a saving under subsection (2) of that section that the section "does not apply in respect of any sentence E passed by a senior resident magistrate of any grade or rank".

What the learned State Attorney is saying, in other words, is that a resident magistrate of or above the rank of Senior resident magistrate has the same sentencing powers as the High Court, and that is the import of the saving in section 170(2) of the Criminal F Procedure Act, 1985.

Section 166 of the Criminal Procedure Act, 1985 provides for the sentencing powers of the High Court. It says that the High Court may pass any sentence or make any order authorised by law, (my underlining for emphasis). Does the saving in section 170(2) of G the Criminal Procedure Act confer on Senior Resident Magistrates the sentencing powers under section 166 of that Act?

It is true that the saving under section 170(2) says that "this section shall not apply in respect of any sentence passed by a Senior Resident Magistrate...." A proviso in section H 7(2) of the Repealed Criminal Procedure Code, Cap. 20 of the laws, which is the equivalent of the saving in section 170(2) of the Criminal Procedure Act, also appeared to say that section 7 of the Criminal Procedure Code on the sentencing powers of a subordinate Court did not apply "in respect of any sentence passed by a Senior Resident I Magistrate." So, on a superficial reading of the saving already referred to the learned State Attorney would appear to be right in his submission.

1988 TLR p15

MROSO J

But in fact, with respect, he is wrong. A

The saving cited above appears immediately after the substantive provisions of subsection (2) of section 170 of the Criminal Procedure Act which stipulates:

(2) Notwithstanding the provisions of subsection (1) - B

(a) a sentence of imprisonment

(i) for a scheduled offence, which exceeds the minimum terms of imprisonment prescribed in respect of it by the Minimum Sentences Act, 1972;

(ii) for any other offence, which exceeds twelve months; C

(b) a sentence of corporal punishment which exceeds twelve strokes;

(c) a sentence of a fine or for the payment of money (other than payment of D compensation under the Minimum Sentences Act, 1972) which exceeds six thousand shillings; shall not be carried into effect, executed or levied until the record of the case, or a certified copy of it, has been transmitted to the High Court and the sentence or order has been confirmed by a Judge. E

Then follows the saving.

It is quite clear, and logically so, that the saving relates to the provisions of subsection (2), and not to the whole of section 170.

In subsection (1) of section 170 it is stated and I quote for ease of reference:- F

170 (1) A subordinate Court may, in the cases in which such sentences are authorized by law, pass the following sentences - G

(a) imprisonment for a term not exceeding five years; save that where a court convicts a person for a scheduled offence, it may, if such sentence is authorized by law, pass a H sentence of imprisonment for such offence for a term not exceeding eight years;

(b) a fine not exceeding twenty thousand shillings;

(c) subject to the provisions of the Corporal Punishment Ordinance, corporal punishment. (My underlining for emphasis). I

1988 TLR p16

MROSO J

A What this means is that a subordinate court (unless it has indented jurisdiction under section 173 of the Criminal Procedure Act) whether held by a District Magistrate, a resident magistrate, a senior resident magistrate or a Principal Resident Magistrate, cannot impose a sentence of more than five years imprisonment for a non-scheduled B offence, or more than eight years

imprisonment for a scheduled offence. However, even though all District Magistrates and all Resident Magistrates are empowered to impose the sentences cited above, a sentence of imprisonment which exceeds 12 months, for a non-scheduled offence, and the minimum sentence, for a scheduled offence, shall need C confirmation by a Judge, unless the sentences are passed by a resident magistrate who is of or above the rank of Senior Resident Magistrate. The word "section" in both the proviso to section (7(2) of the Repealed Criminal Procedure Code and the saving in subsection (2) of Section 170 of the Criminal Procedure Act, 1985 was a drafting D inadvertence. The correct word which was intended by the legislature is "Subsection". The legislature could not have intended to confer on Senior Resident Magistrates and resident magistrates above such rank High Court sentencing powers so casually.

E I have not been able (from our resources here) to find much discussion on the sentencing powers of Senior Resident Magistrates. However, I am in a way supported on the views I have expressed above by a decision of Makame, Ag. J. - as he then was - in the case of Yusuf s/o Issa v R. [1970] H.C.D. n. 275. The appellant in that case, who F had been convicted by the subordinate court on two counts of robbery contrary to sections 285 and 286 of the Penal Code, was sentenced to three years imprisonment on one count and four years imprisonment on the second count, the sentences to run concurrently, plus 24 strokes of corporal punishment. He appealed to the High Court G against sentence only. On appeal Makame, Ag. J. held:

The Criminal Procedure Code (Amendment) Act 1963 notes after the new Seventh Schedule that the old sections 7, 8 and 9 of the Criminal Procedure Code are amended so that among H other things, a subordinate court may pass (a sentence of) up to five years for a scheduled offence, (this must have been before the passing of Act No. 2 of 1972) but:

"Notwithstanding the provisions of subsection (1) of this section, a sentence of imprisonment I for a scheduled offence which exceeds the minimum terms of imprisonment prescribed

in relation to that offence by subsection (2) of section 4 of the Minimum Sentences Act 1963 by A more than six months ..... etc. (unless it is awarded by a senior resident magistrate) shall not be carried into effect ... etc. unless the sentence or order has been confirmed by the High Court".

The trial magistrate in this case was not a senior resident magistrate .... The maximum term B the trial magistrate could impose without confirmation, therefore, was .... (My underlining).

What is being said by Makame, Ag. J. (as he then was) is that the proviso to section 7(2) C of the repealed Criminal Procedure Code on what does not apply to a senior resident magistrate is the requirement for confirmation of certain sentences passed by the subordinate court, not that the whole of section 7 of the Criminal Procedure Code did D not apply to senior resident magistrates.

Another comment on the sentencing powers of a subordinate court can be found in A Handbook on Sentencing by Brian Slattery, published by the Faculty of Law of the University of Dar es Salaam, Tanzania in 1970. At page 1 of the book Slattery said: E

the power of District and Primary Courts to impose particular sentences is sharply restricted by contrast with the High Court, which alone has jurisdiction to sentence up to the full limits specified above (a list had been drawn by the author of different offences and their maximum F sentences) (Underlining is mine for emphasis).

So, it has always been the correct view that all District Magistrates and all Resident Magistrates of whatever grade or rank have no power or jurisdiction to impose G sentences which are higher than as provided in subsection (1) of Section 170 of the Criminal Procedure Act, 1985 and that the saving in subsection (2) of Section 170 relates only to the stipulations contained in that subsection (2).

From the above discussion it follows that the learned Senior Resident Magistrate had no H power or jurisdiction to impose on the accused the sentence of twelve years imprisonment. At the time of hearing the revision proceedings three days ago I quashed that sentence and set it aside. I substituted thereof a sentence of 8 years imprisonment, which is the highest sentence a subordinate court could impose in the offence of cattle I theft, even if it were still

1988 TLR p18

A considered a scheduled offence (which is doubtful, in view of the fact that it has now been listed as an economic offence under Act 13 of 1984).

B Order accordingly.

1988 TLR p18

C

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v BERNARD NJAVIKE 1988 TLR 18 (CA)

Court Court of Appeal of Tanzania - Mbeya

Judge Makame JJA, Kisanga JJA and Omar JJA

30th January, 1988

Flynote

D Economic Crimes - Unlawful prossession of Government Trophy - Whether an economic crime.

Statutory interpretation - Meaning of "dealing" - Economic and Organized Crime Control Act, 1984, Wildlife Conservation Act, 1974.

-Headnote

E The accused was charged, before the Economic Crimes Court, with unlawful possession of Government trophies contrary to para 16 (b) of the First Schedule to and s. 59 (2) of the Economic and Organised Crimes Control Act, 1984 as read together F with s. 67(1) of the Wildlife Conservation Act, 1974. Before the accused was asked to plead, the court, suo moto, invited counsel on both sides to address it on the question whether unlawful possession of

Government Troply per se is an economic offence under G the Economic and Organised Crimes Control Act, 1984. The court decided that unlawful possession per se is not an economic offence as it is not included in the list under para 16 of the said Act. The DPP appealed.

H Held: (i) Unlawful possession is not an economic offence because para 16 of the Economic and Organised Crimes Control Act, 1984 does not embrace all s. 67 offences of the Wildlife Conservation Act, 1974, but picks only un-lawful dealing in trophies or Government Trophies.

Case Information

I Appeal dismissed.

1988 TLR p19

MAKAME JJA, KISANGA JJA AND OMAR JJA

[zJDz]Judgment

Makame, Kisanga and Omar, JJ.A.: The Director of Public Prosecutions, A represented by Mr. Sengwaji Senior State Attorney, is appealing against the ruling of the Economic Crimes Court, Mbeya, presided over by Mroso, J., in which it was decided, in short, that the possession of Government Trophy, per se, is not an economic offence under the Economic and Organized Crime Control Act, 1984. Mr. Bateyunga, learned B advocate, resisted the appeal on behalf of the respondent, and sought to support the trial court's decision.

In the Economic Crimes Court the respondent was charged with unlawful possession of C Government Trophies, contrary to Paragraph 16(b) of the First Schedule and section 59 (2), both of the Economic and Organized Crime Control Act, 1984, as read together with section 67(1) of the Wildlife Conservation Act, 1974. The allegation was that the respondent was found in unlawful possession of eight pieces of elephant tusks. Before he D was asked to plead, the court, on its own volition, invited counsel on both sides to address it on a preliminary point - whether, as aforesaid, the unlawful possession of government trophy per se, is an economic offence. Mrs. Makulu, learned State Attorney, submitted to the trial court that it is an economic offence and advanced an argument E which was, with respect, not particularly logical. It seems to us that the learned State Attorney's stand was as follows: You cannot be a trophy dealer, as defined under section 2 of the Wildlife Conservation Act, 1974, without being in possession of the trophy you are dealing in, and because trophy dealing is an offence under the Economic F and Organized Crime Control Act, unlawful possession is also such offence. Now this sort of reasoning is very clearly untenable and arid of logic. Mr. Bateyunga, who also appeared for the respondent in the court below, submitted before us that the court below was right and pointed out that unlawful possession of Government Trophy is not the only G offence under the Wildlife Conservation Act which does not constitute an economic offence.

Mr. Sengwaji had an up-hill task and we think that he knew as much. After Mr. H Bateyunga had concluded his submissions Mr. Sengwaji said simply "I don't think it is necessary to respond". We are not surprised.

Mr. Sengwaji had tried to seek help from the definition of an 'economic offence' in the Act. An 'Economic Offence' is defined as any offence triable under this Act", and I section 2(2) provides

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MAKAME JJA, KISANGA JJA AND OMAR JJA

A that "All offences created by or punishable under the First Schedule to this Act shall be referred to as economic offences". This does not carry us anywhere for the purpose of the issue raised by the court below. Mr. Sengwaji also invited us to look at the Preamble to the Act and the marginal note to Para 16 of the First Schedule. With B respect, the Preamble does not help the D.P.P.'s appeal at all. The marginal note says 'Offences against conservation of Wildlife Act 1974' and the Para 16 says which ones of those are economic crimes. The pivot of the argument by both Mroso, J. and his lay members, as well as Mr. Bateyunga, appears to us to be that unlawful possession is not included, and they say deliberately so, in the list of Para 16 - Offences. We shall return to C this as it seems to us quite central in the whole argument.

Mr. Sengwaji finally pleaded with us to say that the Economic Crimes Court was in error for the reason that "Dealing" under Section 67 was the most notorious offence when the D Act was passed and Parliament must have intended to curb Unlawful Possession without which there could be no Dealing which was, in most cases, difficult to prove. Well, Dealing might have been 'most notorious' indeed but that can be no good reason for deliberately fracturing the clear provisions of the law. Further, even if it is true that E there can be no Dealing without Possession, and we express no opinion on that, for we do not think this is the right occasion for us to do so, in pure logic that does not make every Unlawful Possession a Dealing.

F With respect, we think that Mroso, J. and his lay members have advanced very lucid and compelling arguments in support of their views and we are convinced that their opinion is sound. We wish to express the same thing in a different manner, thus:

G It is an economic offence triable by the Economic Crimes Court to deal in trophies or in Government trophies, under Paragraph 16 of the First Schedule to the Act. That would be an Economic offence by virtue of its being an offence under section 67 of the Wildlife Conservation act 1974. (Unlawful) Possession is not the only offence under the said section 67. It is also an offence, under the section, to buy, sell or otherwise deal in H any Government trophy. Para 16 of the First Schedule under reference says:

Any person is guilty of an offence under this paragraph who

(a) (Not Applicable)

I (b) Unlawfully deals in trophies or in Government trophies,

(c) (Not Applicable)

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MAKAME JJA, KISANGA JJA AND OMAR JJA

Contrary to section 10, 11, 35 (which have to do with hunting in game reserves; A capturing, wounding, molesting protected animals etc.), Part VI (which deals with 'Dealing in Trophies), section 67 (our relevant section) and 71 (to do with weapons), of the Wildlife Conservation Act ...."

Obviously section 10, 11, 14 and 35 are irrelevant. The 'Dealing' the Act talks about B under Part VI means to engage in the buying, selling, cutting, carving, polishing, cleaning mounting, preserving or processing of trophies, as defined under section 2, plus, more specifically, transferring, exporting and importing trophies without the necessary permits, licences, and certificates. None of the above would, in our view, accommodate Unlawful C Possession

without more. One may conceivably be tempted to say that 'Preserving' under section 2 of the Wildlife Conservation Act is to keep in one's possession or to retain, as such. This would be out of tune with the most of the relevant portion of the section and would offend the Ejusdem Generis rule. In the context to preserve must mean D to keep from decay or degeneration, to make it lasting. We have made this little remark so as to avoid conceivable doubt.

We promised to come back to the argument regarding Para 16. As remarked, a section 67 offence is decleared to be a Para 16 Offence therefore on the face of it it would be an E economic offence. The correct argument is that although Unlawful Possession is a section 67 offence, so that on the face of it it would amount to an economic offence, it is not an economic offence for the simple reason that Para 16 does not embrace all section 67 offences i.e. Possession or Buying, Selling or otherwise dealing in any Government F Trophy. From Section 67 Para 16 picks out only Unlawful Dealing in Trophies or Government Trophies. And as aforesaid, Dealing is defined; it is a term of art; and it does not include Unlawful Possession as such. G

We have digested and carefully considered the rival arguments and, having done so, we are of the firm view that the one leading to the conclusion that Unlawful Possession of Government Trophy, per se is not an economic offence under the Economic And Organized Crime. H

Control Act 1984 is formidable and sound. Accordingly, we dismiss the appeal by the Republic and uphold the Economic Crimes Court's decision.

We wish to commend the particular Economic Crimes Court for initiating the debate, on an occasion so meet and right, which led to the matter being properly placed before us I for consideration

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A and decision. We think it is desirable that the matter is now settled for we gather that there were conflicting decisions in the High Court. With respect, however, we wish in passing to observe that the various examples of unlawful possession of Government trophies which the court below remarked do not raise serious public outcry may not be B without controversy. Such examples given include hired porters who carry Government trophies, and "drivers of big lorries which transport large quantities of Government trophies for unlawful sale within or outside the country". In fact some people might say some of the examples given amount to Dealing, but at this stage we can say no more than C that. "There is a place and season for everything".

Appeal dismissed.

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E

[zRPz]THE TOWN DIRECTOR v DANIEL SEKAO 1988 TLR 22 (HC)

Court High Court of Tanzania - Mwanza

Judge Mwalusanya J

2nd February, 1988

Flynote

F Land Law - Land held under a right of occupancy lawfully acquired - Order stopping occupier to develop his land - Reason for stop order intended application to the President to revoke the right of occupancy - Whether such stop order is valid.

-Headnote

G Respondent was the lawful owner of a plot in Bukoba Township. He held a valid title deed evidencing a 99 years Right of Occupancy. He had also been granted a building permit for developing the land. The appellant however issued him with a stop order restraining him from developing the plot in question on the ground that the appellant H intended to apply to the President to revoke the respondent's right of occupancy. The respondent successfully challenged the stop order in the lower court where upon the appellant filed this appeal. At the hearing of the appeal, counsel for the appellant produced a letter from the Ministry of Lands Headquarters signed on behalf of the I Director of Town Planning, purporting to revoke the right of occupancy granted to the respondent.

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MWALUSANYA J

Held: (i) That the appellant had no right to issue the stop order; A

(ii)Obiter: that even assuming the said Director of Town planning had the power to revoke a Right of Occupancy, the revocation could not have retrospective effect to justify the stop order. B

Case Information

Appeal dismissed with costs.

[zJDz]Judgment

Mwalusanya, J.: The respondent Daniel s/o Sekao is a lawful owner of a plot No. 25 BK 'R' along Uhuru Street in Bukoba Township. He has a right of occupancy C L.O.S.215/76 of 18/1/1985 for 99 years as evidenced in Title deed No.003008/33 of 29/1/1987. He has a building permit of 1/2/1986 issued by the appellant; and pursuant to that permit, the respondent began to develop his land in early 1986.

On 25/4/1987 the appellant, the Town Director of Bukoba Township, wrote a letter to D the respondent ordering him to stop developing the plot in question on the ground that the Town Authority intended to apply to the President to revoke the right of occupancy in question. It is said that the Town Aurthority has earmarked the plot in question as a E recreation ground or something to that effect. However the respondent successfully challenged the 'stop order' in question in the lower court. Aggrieved by the decision of the lower court, the Town Director of Bukoba Township has now appealed to this Court.

At the hearing of the appeal Mr. Rutakolezibwa Counsel for the Town Director F produced a letter in Court (Exh. A dated 9/1/1988) from the Ministry of Lands headquarters, signed by one Mr. Mango on behalf of the Director of Town Planning, purporting to revoke the right of occupancy granted to the respondent.

Even if the said Director of Town Planning had a right of revocation of a right of G occupancy, still this would not be of any assistance to the Town Director as, on 25/4/1987 when the stop

order was issued, there was no revocation yet of the right of occupancy. So obviously the trial court was right to hold that the Town Director had no right to issue the stop order of development of the plot owned by the respondent. The H Town Director's order was rightly vacated.

But even then, the purported revocation of the right of occupancy by the Director of Town Planning made on 9/1/1988 is obviously null and void, as the said officer has no I power to make a revocation. That power of revocation of occupancy is vested in the

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A President of the United Republic of Tanzania as provided under s.10 of the Land Ordinance Cap 113 and the President has to do so for a good cause. And the revocation order has to be published in the Government Gazette if it has to have any force of law. Counsel for the Town Director Mr. Ruta conceded that much, at the hearing of the B appeal.

Therefore so far the respondent is entitled and empowered to develop the land in question. Once the revocation is done by a lawful authority, then the development will cease, and the respondent will be paid compensation for all the unexhausted C improvements he has carried on the land. The ball is in the court of the Town Director to move the President for a revocation. But it will be invidious to accede to a prayer for a stop order of develpment of the land, when we do not know that the revocation will ever take effect. This court will not act on conjecture and speculation. In the event the appeal D is dismissed with costs.

Appeal dismissed.

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E

[zRPz]SARJIT SINGH v SEBASTIAN CHRISTOM 1988 TLR 24 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Kyando J

F 18th April, 1988

Flynote

Land Law - Letter of Offer - Significance of letter of offer - Offer of a Right of Occupancy - Revocation of offer - Whether District Land Officer can revoke.

G Land Law - Right of Occupancy - When is a Right of Occupancy created - Section 6 of Land Ordinance (Cap. 113).

Land Law - Letter of Offer - Acceptance of offer - Payment of required fees, supplying information required in the letter of offer - Certificate of Occupancy - Whether its absence H nullifies offeree's title to the land.

Land Law - Letter of Offer - Revocation of offer by District Land Officer - Right of Occupancy granted over the same plot with a certificae of title.

I Evidence - Letter of revocation - Not tendered by author thereof - Copy thereof tendered in evidence - Documentary Evidence.

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KYANDO J
-Headnote
On 26/2/1977 the appellant (Sarjit Singh) was offered a right of occupancy over Plot A No. 978 Msasani Peninsula, Dar es Salaam by the Kinondoni District Land Office. The offer was contained in letter of offer Ref. No. D/KN/A 9782/AOM dated 26th February, 1977. On 20/3/1980 the District Land Development Officer Kinondoni, wrote the appellant a letter Ref D/KN/A 9782 JRC of 20/3/1980 by which he revoked the B appellant's right of occupancy and offered it to the respondent (Sebastian Christom) who was finally issued a certificate of occupancy for the plot. The appellant is appealing to the High Court after being dissatisfied by the judgment and decree of the Resident Magistrate's Court. C
The appellant's advocate argued that the District Land Officer has no power in law to revoke a right of occupancy duly granted. He added that the Resident Magistrate erred in law in considering the certificate of occupancy as constituting the right of occupancy D itself. That the learned magistrate ought to have held that the right of occupancy vested in the appellant immediately after he accepted the offer of right of occupancy. The respondent's advocate argued, inter alia, that title to land vests only when a certificate is issued.
Held: (i)A right of occupancy is created by the approval of the applicant's application for E the grant of the same (i.e. a right of occupancy) and the acceptance by the applicant of the granted right;

(ii) the revocation by the District Land Officer was of no effect as it was made by someone who had no power to revoke titles as provided for under section 10 the Land Ordinance (Cap. 113). F
Case Information
Appeal allowed.
Cases referred to:

1. Patman Garments Industries Ltd. v Tanzania Manufacturers Ltd. [1981] T.L.R. 30. G

2. Col. S.M.A. Kashimiri v Maginder Singh Matharu (CA) Civ App. No. 4 of 1988 (unreported).

Raithatha, for the appellant H
Tenga, for the respondent
[zJDz]Judgment
Kyando, J.: This appeal arises out of the judgment and decree of the Resident Magistrate's Court of Dar es Salaam, at Kisutu, whereby the respondent Sebastin I Christom was declared the person legally entitled to Plot No. 978, Msasani Peninsula, Dar
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KYANDO J
A es Salaam, as against the appellant Sarjit Singh. At the hearing of the appeal Mr. Raithatha, learned advocate, appeared for the appellant and Dr. Tenga of the Legal Consultancy Services, Faculty of Law University of Dar es Salaam, appeared for the respondent.

The facts of the case are simple, although the legal issues which arise for determination B are not as simple. Very briefly on 26/2/77 the appellant was offered a right of occupancy over the plot mentioned hereinabove by the Kinondoni District Land Office. The offer was contained in a Letter of Offer Ref. No. D/KN/A9782/AOM dated 26th February, C 1977. It was tendered in evidence at the trial and marked as Exh. P.A. Mohinder Sigh (PW1) who said he was appellant's brother and was acting for him (the appellant) paid all the fees for the plot and apparently supplied all the information required in the Letter of Offer on behalf of the appellant. He also obtained a building permit from the City Council, Dar es Salaam, to build on the plot.

D On 20/3/1980 the District Land Development Officer, Kinondoni, wrote the appellant a letter, Ref. D/KN/A9782/JRC of 20/3/1980 (in file Exh. D4) by which he revoked the appellant's right of occupancy over the plot. Upon the revocation a right of occupancy E over the plot, the same plot was offered to the respondent, (by letter of offer tendered in evidence at the trial and marked as Exh. D1. It is dated 20/8/1980). The respondent paid the requisite fees, supplied the information as usually required, and was issued with a F certificate of occupancy (Exh. D2) in relation to the plot. He started construction on it. On noticing this, the appellant filed this suit in the court below, seeking perpetual injunction to restrain the respondent from erecting a building on the plot. He also prayed for costs of the suit and any other relief as the court might deem fit. On 16th October, G 1987, the trial court (Msanche RM) dismissed the suit and declared that the respondent was the rightful owner of the plot in dispute because the appellant's title to it was revoked by the letter of the District Land Officer Ref. No. D/KN/A/978/4/JRC dated 20/3/80. The appellant was not satisfied with that decision and now appeals to this court against it.

H In grounds 1, 2, 3 & 5 of his memorandum of appeal the appellant contends as follows:

1. The learned trial magistrate erred in law and fact in holding that the appellant's title to the suit premises was revoked by the letter of the District Land Officer I reference No. D/KN/A/978/4/JRC dated 20/3/1980. The learned trial

magistrate erred in relying on the said letter and/or erred in placing any weight A thereon and/or the learned trial magistrate ought to have found and held that the District Land Officer has no power to revoke a right of occupancy duly granted.

2. The learned trial magistrate erred in law in considering the certificate of B occupancy, Exhibit D.2, as the right of occupancy itself and ought to have held that a right of occupancy vested in the appellant immediately after accepting the offer for a right of occupancy. C

3. The learned trial magistrate erred in holding that the respondent had a better title and ought to have held that the appellant being a prior grantee of the right of occupancy was entitled to the suit land and ought to have further held that D the subsequent grant of a right of occupancy of the appellant still subsisted was irregular.

4. The learned trial magistrate erred in holding that the appellant never followed up but ought to have held that after payment of the necessary fees for the E certificate of occupancy it was the duty of the land authorities to issue the certificate of occupancy.

The letter of revocation was tendered in a file by a Financne Management Assistant from F the Revenue Office, one Brown Mwambope (DW.2). It was not tendered by the authors of it, i.e. the District Land Development Office. Before me Mr. Raithatha argued that the letter was a copy and was tendered by an Officer who was not in office when it was written. I agree. The letter was quite clearly a copy, sent to the Revenue Office, by G the District Land Office for revenue purposes as DW.2 himself says in his evidence. Very unfortunately, however, no objection to its introduction into evidence was made by Mr. Raithatha, who also represented the appellant at the trial, when it was being H produced by the respondent. Whatever the case, however, I am satisfied that it was improperly admitted in evidence. The original of it should have been tendered, unless there was an explanation, which was lacking in this case, for the tendering of a copy. Also the officials in the District Land Office should have been the ones to tender it, not I someone from the Revenue Office who was only a receipient of a

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KYANDO J

A copy of it. Then, on this letter, the learned magistrate says in his judgment, "Before the defendant got the offer of a right of occupancy on 20/8/1980, the plaintiff had received a letter from the same office, the Kinondoni District Land Office. The letter was D/KN/A.978/4/JRC dated 20/3/80" (underlining supplied). Going through the record B there is no evidence that the plaintiff/appellant ever received this letter. He did not say in his evidence that he received the letter. The only evidence on the letter is that given by D.W.2 but he too does not testify to the appellant/plaintiff receiving it. The above statement by the learned magistrate is therefore erroneous.

C Mr. Raithatha further argued that revocation was never pleaded in the respondent's/defendant's Written Statement of Defence. He argued also that the appellant's witnesses were never cross-examined on the question of revocation and he submitted therefore that revocation was an after thought by the respondent. Indeed D revocation was not pleaded in the respondent's Written Statement of Defence. Nor were the appellant's witnesses cross-examined on it.

I would agree, therefore, that revocation in this case was a kind of an after thought.

E As indicated above the learned trial magistrate held that the offer of the right of occupancy to the appellant "became actually revoked by the letter dated 20/3/80" in deciding the case against the appellant. He also observed:

> Mr. Mwalunguza (PW2) the then District Land Officer of Kinondoni told the Court emphatically F that what the plaintiff (appellant) was given on 26/2/77 was an offer of a Right of Occupancy and not a Title Deed. I think it is common knowledge that when one attempts to acquire title to any piece of land, not only in Dar es Salaam but also elsewhere, one first gets an offer, the G offer must then be accepted. Once it is accepted the real title is granted. The grant of Right of Occupancy is not automatic as some people tend to think, or would it necessarily follow after the offer is communicated. I can see that for three years the plaintiff never made a follow up to acquire the real title deed. Not only that: In fact he even never improved on the

land. The land H Office was in Law perfectly entitled to give that offer to another person who was prepared to develop it.(Underlining supplied)

I The above holding and observations by the trial magistrate became the crucial points in this appeal before me. Mr. Raithatha

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took the position that a right of occupancy over a plot is granted by a Letter of Offer and A then accepted by the offeree. The latter must pay the requisite fees and supply the information required in the letter of offer to constitute acceptance on his part. Once this is done a right of occupancy is created and granted to the grantee and this is the grant to which S.6 of the Land Ordinance, Cap. 113 refers. He said there is no other way of B granting a right of occupancy under Cap. 113 and that there are no prescribed forms for such a grant. He referred this Court to the case of Patman Garments Industries Ltd. v Tanzania Manufacturers Ltd. [1981] T.L.R. 30 and submitted that in that case the appellant, Patman Garments Industries Ltd., had only been offered a right of occupancy C whereas the respondents Tanzania Manufacturers Ltd. had gone a step further and obtained a certificate of occupancy as well. Yet, he said, the court of Appeal of Tanzania held in favour of the appellant and said the President erred in revoking the appellant's right of occupancy; the court nullified that of the respondents, and restored that of the D appellant even though the respondents had a Certificate of Occupancy and the appellants had none. Mr. Raithatha, citing a passage from Prof. James, "Land Tenure and Policy in Tanzania" P.117, said a Certificate of Occupancy is not the right of occupancy itself, but E it is a document evidencing the right. He concluded his arguments by submitting that as a right of occupancy is created when an offer for it is made and there is acceptance of it, once these (Offer and acceptance) are made no other person can revoke the right of occupancy thus created except the President under S.10 of the Land Ordinance Cap. F 113. He said as the President has delegated the power to revoke rights of occupancy to the Minister for Lands and the Director of Land Development Services, only these can also revoke a right of Occupancy - on behalf of the President. He contended therefore that the purported revocation by the District Land Officer by the letter referred to above G was invalid and without any effect as the said District Land Officer had no power to revoke a right of occupancy once granted. He submitted that because the purported revocation was without effect, the appellant is still the rightful owner of the plot in dispute and that the subsequent grant of a right over the plot to the respondent is null and void. H

In reply Dr. Tenga supported the position taken by the trial Court on this point and submitted that an offer of a right of occupancy does not confer title to land on the offeree. He said when an offer is made and accepted then the grant of a real title is made. He I contended that the Letter of Offer is only a contract binding on the Government

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KYANDO J

A to issue a Certificate of Occupancy. By itself, he said , it vests no title in the offeree. The title, he submitted, only vests when the certificate is issued. He referred me to a passage in a paper by

Prof. G. Mgongo Fimbo entitled, "Double Allocation of Urban Plots. A legal Labyrinth, Citizens' Puzzlement and Nightmare" which the learned B professor delivered at a public lecture on 3rd September 1988 to the Law Association of Tanzania. The passage appears at P.4 of the paper and is one of the matters Prof. Fimbo summarizes as being undisputed. It says:

C The grant of a right of occupancy is manifested by the certificate of occupancy and the right of occupancy vests in the relevant person on the execution thereof.

Dr. Tenga submitted that in view of the above passage the distinction by Prof. James at D page 117 of his book referred to by Mr. Raithatha is of a rather technical nature. He argued also that reference to a "Right of Occupancy" in relation to the Offer made to Patman Garments Industries Ltd. in Patman Garments Industries Ltd v Tanzania Manufacturers Ltd. (supra) was a a loose way of naming the deal for it was not, he E argued, a "Right of Occupancy" as such.

He (Dr. Tenga) contended also that what the appellant got, upon being offered a right of occupancy, was not a title to the land but a commitment from the Government to issue a certificate of occupancy. He said when the certificate is issued it is at that stage that the F Right of Occupancy vests in the grantee. He further contended that in this case what was cancelled by the district Land Officer was not a "Right of Occupancy," which can only be revoked by the President, but a contract of offer. He argued that if such concellation was done wrongfully the remedies the appellant has are specific performance and G damages. He said, however, that these remedies are available to the appellant not as against the respondent, but against the Government which issued the offer and committed itself to issuing a certificate of occupancy.

H Finally Dr. Tenga also contended that as in this case the respondent already has been issued with the certificate of occupancy, under s.33 (1) of Cap. 334 his estate, being an estate of a registered owner, is paramount. He said if the appellant wants to challenge the memorials in the Land Register the procedure is for him to apply either to the High Court I or to the Registrar of Titles for rectification of the Land Register. His position is that the present case is not a case of double allocation. He contended that as the allocation to

respondent was made after the offer to the appellant had been cancelled, the question of A double allocation does not arise. He submitted that the appellant's suit is misconceived because there is no, he contended, grant of a right of occupancy which vested in him. He prayed therefore that the appeal be dismissed.

As can be seen, both counsel have made very impressive and learned arguments. I owe B them unlimited gratitudes for the efforts they made in preparing themselves so well to present, and for making, these arguments. Also can be seen, the issue for determination does not seem to have been the subject of judicial investigation and determination before. Most authorities as they are available are on whether a revocation by the President was C valid or not; I have not come across one on when does a right of occupancy take effect or is created.

I now proceed to consider and determine this question of when a right of occupancy is D established or created. The point of departure is, I think, the Letter of Offer itself. I will examine and consider the effect of this first.

It (the letter) states, in part:

Your application for a long term Right of Occupancy (later in this letter called the 'Right') over E this plot has been approved. On receipt of the fees and information requested below I will send a certificate for you to sign containing the following conditions:

(i) Term 99 years from 1/1/1977 F

(ii) Rent 480/= a year revisable after ten years

(iii) (Not applicable)

(iv) (Not applicable)

(v) The building to be in permanent materials. G

(a) Plans to be submitted to the Dar es Salaam Development Council within six months from the date of the commencement of the Right.

(b) Building to begin six months from approval of the plans.

(c) Building to be completed within 36 months from commencement of the Right. H

(vi) (Not applicable)

(vii) (Not applicable)

(viii) (Not applicable) I

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KYANDO J

A 2. The following information is required by me:

(a) Your full name (in block letters). No request to have certificate of Occupancy written/issued in the name of a person or persons other than offered shall be entertained.

B (b) Your full residential address, giving house number, and name of street, and your P.O. Box number (if any).

(c) Whether you wish to hold as joint tenant or tenants in common and if the latter the share to be taken by each of you. (The property of C deceased joint detant in common passed to his/her heirs according to law).

(d) Whether certificate will be signed in Tanzania or abroad and, if a Company, the manner of realing.

D Paragraph 3 of the letter lists various types of fees which the offeree was required to pay and paragraph 6, the last paragraph of the letter, warns that unless the offer is accepted and all fees are paid within 30 days from date of the letter, "the offer shall lapse and after that date the land will be disposed of as I see fit without further reference to E you."

The letter opens with the words "Your application for a long term Right of Occupancy, (later in this letter called "The Right") over this plot has been approved." Here, the applicant applies for a long term right of occupancy and he is informed that the F application/is approved. The applicant did not apply for an offer: he applied for a right of occupancy and the fact that it has been approved must, in my view, mean he has been given or granted what he applied for, i.e. the right of occupancy. Then the letter states that upon receipt of fees and information requested in the letter, a certificate of G occupancy will be sent to the applicant. There is no further

procedure between the stages of approval of the application and the issuing of the certificate once fees are paid and the information is supplied. So when is the grant made? Obviously at the time of the "Letter of Offer" by which the applicant is informed that the application has been approved. H Prof. James in his book referred to above, at P.122 says "When granting unsurveyed land, the Land Officer usually grants an Offer of Right of Occupancy," which is a formal document setting out all the terms and conditions of the grant. The expression "offer of a right of occupancy" is misleading because the document is not a mere offer, but it is a I final document embodying agreed terms." Here he discussed offers or grants of rights over unsurveyed

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land but the document he discussed, i.e. the letter containing 'An offer of a right' is the A same in relation to surveyed and unsurveyed lands. So the so called "offer of a right of occupancy," as I have said, is the grant of a right itself, so that by what we call a Letter of Offer a grant by the land office is in fact made of a right of occupancy over a piece of land. B

The other document for consideration is the letter of revocation referred to above. This letter states:

JAMHURI YA MUUNGANO WA TANZANIA C
OFIS YA WAZIRI MKUU

Mkoa Wa Dar es Salaam Ofisi ya Mkuu wa Wilaya
Simu 28691/2/3 Idara ya Ardhi (W)
Kumb. Na. D./KN/A/9782/JRC S.L.P. 9588
Dar es Salaam D
20/3/1983
KUFUTWA KWA HAKI YA UMILIKAJI WA KIWANJA NA. 988
MSASANI PENINSULA - DAR ES SALAAM E

Rejea barua yangu ya toleo Kumb. Na. D/KN/A 9782/ACM ya tarehe 26/2/1977 kuhusu somo hilo hapo juu.

Kwa barua hiyo ulitakiwa uwe umemaliza ujenzi wa nyumba yako ifikapo tarehe 30/12/1979. F Mpaka hivi sasa hakuna kilichofanyika na hivyo bado kiko wazi. Kutokana na hayo imedhihirika wazi kwamba umeshindwa au hutaki kukiendeleza kiwanja hiki. Kwahiyo unaarifiwa kuwa haki yako ya kumiliki kiwanja hiki imekwisha kuanzia tarehe ya barua hii na G kwamba unatakiwa kukiacha katika hali safi.

Kwa barua hii Mkurugenzi wa Huduma za Ardhi, Afisa Mkoa wa Dar es Salaam, wanaombwa kurekebisha kumbukumbu zako.

(Sgd) J.R, CHUMA H
AFISA MAENDELEO YA ARDHI (W)
KINONDONI

As can be seen, this letter is headed, "Kufutwa kwa Haki ya Umilikaji wa Kiwanja Na. 978 Msasani Peninsula ....." "Haki ya Umilikaji I

A Kiwanja" means a right of occupancy. So the District Land Officer was clear in his mind as to what he was revoking, not a contract but a right of occupancy as his letter states. He could not have been revoking a right of occupancy which he knew did not exist - because of lack of a certificate of occupancy; he must have assumed that the right of occupancy had come into existence because of the letter of offer and acceptance of B the offer by the applicant the appellant.

Then some court decisions: As argued by Mr. Raithatha, in the Patman Garments C Industries Ltd. v Tanzania Manufacturers Ltd. case (supra) what was revoked by the President was the right of occupancy granted to the appellants. Patman Garments Manufacturers Ltd. At the time of the revocation the appellants had not been issued with a certificate of occupancy yet, though the respondents had. Yet what was revoked is referred to in the judgment of the Court of Appeal as a right of occupancy, not a mere D contract or commitment to issue a certificate of occupancy as Dr. Tenga contends. Secondly, in the case of Col. S.M.A. Kashimiri v Maginder Singh Matharu, (CA) Civ App. No. 4 of 1988 (unreported) a case to which I was referred by Dr. Tenga, it is stated in the following passage from the judgment of Omar, J.A.:

E This is a case of double allocation of a parcel of land. Both parties to the suit were each allocated the same plot within a space of two months. Respondent was the first person to be allocated on 20/11/80 after the Allocation Committee known by the name of Urban Planning Committee had sat on 18/11/80 and considered his application and approved his name as the F now owner of the plot for a lease of 99 years. Respondent was required to pay the necessary fees for the plot within thirty days from the date of this offer of right of occupancy before the plot could be legally deemed to have passed to him.

G From this passage it is clear that land becomes legally owned or a right of occupancy is established, once an offer for it is made and the offeree pays the fees. The question of a certificate does not arise in order for a right of occupancy to be created.

H As for the passage from Prof. Fimbo's paper referred to by Dr. Tenga, very unfortunately it is not elaborate enough to show exactly what it was intended to mean and in what context Prof. Fimbo makes the point. In one sense by saying that the grant of a right of occupancy is manifested by the certificate of occupancy, he may be taken to I mean the same thing as what were are trying to

say here, i.e. that a certificate of occupancy is evidence of a right of occupancy but not A the right itself. But if he means that the certificate is the one which creates the right of occupancy I think, with utmost respect, he cannot be right. Prof. James in his book (supra) at p.117 says it is clear from section 9 of the Land Ordinance, Cap. 113, "that a B certificate is not the right of occupancy itself, but is a document evidencing the right...." In view of the mass of material I have attempted to examine above, I am of the view that it is him who is right and I will not accept the statement of the law as made by Prof. Fimbo on the point under consideration.

From the above then, it is obvious that the District Land Officer revoked a right of C occupancy. He himself in fact knew that he was revoking a right of occupancy for he states, as already shown, in the heading of his letter "Kufutwa kwa Haki ya Umilikaji wa Kiwanja..." (Revocation of a right of occupancy). I hold therefore that a right of D occupancy is created by the approval of the applicant's appliaction for the grant of one, i.e. a right of occupancy, and the acceptance by the applicant of the granted right. The trial magistrate was clearly wrong therefore when he held that what was revoked by the District Land Officer was not "the real right of occupancy" but only "an Offer of a right of Occupancy." As Prof. James states in his book referred to above, "Offer of a right of E Occupancy" is a misleading term, as the offer is in fact the grant itself. There is therefore no such thing as "real right of occupancy" in law, a term employed by the trial magistrate in his judgment.

Did the District Land Officer have power to revoke the right of occupancy? Obviously F not. While power to grant rights of occupancy have been delegated to him (see James, "Land Tenure and Policy in Tanzania" (supra), p. 116, no powers to revoke the rights have been delegated to him. It is only the President who has such powers, or at the G lowest, the Minister for Lands or the Director for Land Development Services. So the purported revocation of the right of occupancy granted to the appellant in this instant case was of no effect at all. It was made by someone who had no power to revoke.

Is it perhaps that failure to complete building on the plot by the appellant within 36 H months from the date of commencement of the right caused the right to lapse? I do not think this was possibly the case, for although there is this requirement that building was to be completed within 36 months there is no indication in the Letter of Offer as to what I would happen if construction had not been finished within that period. In paragraph 6 of the Letter of Offer, it

A is only failure to accept the grant and to pay fees within 30 days "from the date of this letter" that lead to lapsing of a grant. Nothing occurs where development within the 36 months is not carried out according to that Letter. Revocation for failure to develop must therefore be resorted to only as provided for in s.10 of the Land Ordinance Cap. 113. B Under that section the President can revoke a right of occupancy for good cause on the ground of non-development if the holder of a right has abandoned or does not use the land for a period of five years. So even if the District Land Officer had powers to C revoke, he would have acted prematurely in the instant case by revoking for non-development for a period of three years only. The law provides for abandonment or non-use of land for five years, not three years, to warrant a revocation of a right of occupancy over it.

D What then is the result of the District Land Officer's wrongful and in ineffectual revocation of the appellant's right? Dr. Tenga, as shown above says the remedies to the appellant are in specific performance and damages, as against the Government. I do not think that is the case. First as Dr. Tenga himself submitted, those would have been the remedies if I had held that what was revoked was a mere contract. But I have held that E what was revoked was a right of occupancy conferring upon the appellant's rights over the suit plot. If the perported revocation

was without effect as I have held it means that those rights were never in law ever taken away from him (the appellant) and the only thing for this court to do is to declare that he is still the rightful owner of the plot. F Appellant's rights over the plot still subsisting, it means that any later grant of a right over the same plot is null and void. In other words nothing was granted at all after the grant to the appellant for the land Office could not have granted another right over a plot it had already granted to another person. I declare here that the grant or purported grant of a G right over the plot in dispute in this case to the respondent in null and void. The appellant remains the rightful owner of the suit plot.

Secondly concerning a possible claim for specific performance and damages against the H Government, I think this is open to either party, who eventually loses in a suit over a disputed plot to sue for these. In the instant case it can be said that it is open to the respondent too to sue the Government for allocating him a plot over which the existing right of occupancy had not been properly revoked. I do not accept the argument that the appellant, the rightful owner of the the plot, should have been the one to sue for specific I performance and damages as against the Government. This stop is open to either party and I think, as I have said, it all depends on who eventually

loses in a suit over a disputed plot. A

As to whether the appellant should have sought a rectification of the Land Register rather than sueing as he did, the course of action the appellant took has been taken in many cases against registered grantees of rights of occupancies (see, e.g. Patman Garments B Industries Ltd. v Tanzania Manufactures Ltd. case (supra).) So I do not think by suing the appellant adopted an unusual or improper step in seeking redress in this case.

In the final analysis therefore, I hold that revocation in this case was not pleaded or proved by credible evidence. If it was proved, it (the revocation) was done by a person C who had no power to do it. For these reasons I declare that the appellant is the rightful owner of Plot No. 978, Msasani Peninsula, Dar es Salaam, and the prayer for perpetual injunction against the respondent is granted. I allow the appeal by the appellant and set aside the judgment and decree of the trial court which erroneously deprived him of the D plot. The respondent is given one month from the date of this judgment to remove the structure he has put up and the materials he has collected on the suit plot. He is restrained, together with his agents or servants, from interfering with the plot in anyway.

Appeal allowed. E

F

[zRPz]MWINYI MOHAMED ABDALLA v S.M.Z. 1988 TLR 37 (CA)

Court Court of Appeal of Tanzania - Zanzibar

Judge Mustafa JJA, Makame JJA and Omar JJA

5th May, 1988 G

Flynote

Criminal Practice and Procedure - Substituted conviction -"Being in possession of property suspected to have been stolen" substituted for "Stealing by servant" - Whether irregular - H Section 271 of the Criminal Procedure Decree.

Evidence - Of accomplice - Corroboration.

-Headnote

The appellant was charged with and convicted of stealing by servant c/s 248(4) of the Penal Decree. The trial court presided by a Resident Magistrate concluded that the I appellant had stolen the alleged items

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MUSTAFA JJA, MAKAME JJA AND OMAR JJA

A and convicted the appellant as charged although the items alleged to have been stolen carried no identification marks. The appellant appealed to the High Court which was not satisfied that the items were properly identified. Ramadhani C.J. could not support a conviction of stealing by servant. However, the learned Chief Justice was on the evidence B satisfied that it was the appellant who took the box of motor vehicle spares to the shop and that because the appellant was unable to explain how he came by the same, the Chief Justice substituted a conviction of being in possession of property suspected to have been stolen c/s 285A of the Penal Decree. The appellant appealed to the Court of C Appeal challenging the evidence relied upon by the High Court and the sentence imposed in that it was excessive. Mr. Mtembei for the Republic submitted that the learned Chief Justice erred in convicting the appellant under the provisions of section 285A without the sanction of the Attorney General.

D Held: (i) Where an accused person is charged with an offence requiring the previous sanction of the Attorney General for prosecution, the court cannot substitute the charge with a conviction for an offence whose prosecution does not require such sanction.

E (ii) in the present case conviction for possession of suspected stolen property could be substituted for stealing by servant under section 271 (1) (a) of the Criminal Procedure Decree.

Case Information

Appeal dismissed.

F El-Maamry, for the Appellant

Mtembei, for the Respondent

[zJDz]Judgment

G Mustafa, Makame and Omar, JJ.A.: The appellant was charged with and convicted of stealing by servant contrary to section 248(4) of the Penal Decree (Cap. 13) of Zanzibar in a Resident Magistrate's Court and was sentenced to 5 years imprisonment. He appealed to the High Court and the High Court (Ramadhani, C.J.) substituted a conviction of being in possession of property suspected to have been stolen H contrary to section 285 A of the Penal Decree and reduced the sentence of imprisonment to three years. The appellant is appealing from that judgment to this Court.

The case for the prosecution was that the appellant was an employee of the Zanzibar I State Trading Corporation. The Corporation dealt in various kinds of articles for sale, among which were motor vehicle spares. The appellant, one week end, was alleged

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MUSTAFA JJA, MAKAME JJA AND OMAR JJA

to have brought a box to the shop of P.W.2. The box contained various kinds of motor A spares, steering racks, engine mountings, armatures and carburettors. There was a theft at the Corporation of motor vehicle spare parts, which included items similar to those allegedly contained in the box brought by the appellant to P.W.2. P.W.2. was a shop keeper. It was alleged that the appellant had asked P.W.2 to sell the spares on his B (appellant's) behalf. P.W.2 had agreed, and the transaction was still in progress when the Police, on information received, came to the shop of P.W.2, about 4 days later, and discovered the motor vehicle spares. P.W.2 alleged that the appellant had brought those motor spares to his shop. P.W.2 was supported in that testimony by P.W.1, and P.W.4, C both brothers of P.W.2. However, P.W.3, a neighbour, had also seen the appellant carrying a box to the shop of P.W.2, and soon thereafter saw the contents, which were motor vehicle spare parts.

The appellant admitted that he was an employee of the Corporation but denied that he D had ever brought a box containing motor spares to the shop of P.W.2. He alleged that P.W.1, P.W.2, P.W.3 and P.W.4 had all told lies to implicate him.

The trial magistrate concluded that the appellant had stolen the various motor vehicle E spare parts contained in the box he had carried to P.W.2's shop and that, in the circumstances, although the spare parts carried no identification marks, they must have been the property of the Corporation. He accordingly convicted the appellant of stealing as charged. The learned Chief Justice, on first appeal, was not satisfied that the motor F vehicle spare parts had been properly identified as those stolen from the Corporation and could not support a conviction for stealing by a servant. He treated P.W.1. P.W.2, and P.W.4 as accomplices but he found corroboration of their testimony in the evidence of P.W.3. The learned Chief Justice was satisfied that the appellant had taken the box of motor vehicle spares to the shop of P.W.2. Since the appellant did not explain how he G had obtained these spares, in fact the appellant had denied he ever had had those spares, the Chief Justice substituted a conviction of being in possession of property suspected to have been stolen in purported contravention of section 285 A of the Penal Decree. H

Mr. El-Maamry appeared for the appellant before us. He submitted that there was insufficient evidence adduced at the trial to support a finding that the appellant was in possession of the motor vehicle spares. He contended that the Chief Justice did not give I any or any sufficient consideration to the evidence tendered by the appellant. Since both the courts below had found that it was the

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MUSTAFA JJA, MAKAME JJA AND OMAR JJA

A appellant who had brought the motor spare parts to P.W.2's shop, Mr. El-Maamry's submission has no merit. He also submitted that the terms of 3 years imprisonment imposed by

the Chief Justice was excessive, and he suggested that the Chief Justice had erred in assessing the sentence since he had relied partly on the value of the said motor B vehicle parts said to be worth Shs. 100,000/=. He said these values must have been less, as shs. 100,000/= covered 19 items, and only 4 types of items were allegedly in the possession of the appellant.

Mr. Mtembei for the Republic began his address to us by submitting that the learned C Chief Justice had erred in substituting a conviction of being in possession for one of stealing. He submitted that section 285A was an additional section immediately following section 285 of the Penal Decree and was brought in by an amendment to the Penal D Decree by Decree No. 1 of 1980 and in section 6 of Decree No. 10 of 1985 a prosecution for an offence under inter alia section 285A "shall not be instituted except by or with the sanction in writing of the Attorney General". We think that Mr. Mtembei's point was that in the absence of such a sanction by the Attorney General the appellant E could not have been convicted under the provisions of section 285 A.

We are satisfied that the learned Chief Justice had erred to have purported to rely on the provisions of section 285A. Section 285 of the Penal Decree is invoked by reference to F section 18 of the Criminal Procedure Decree, an offence connected with the conveyance of property suspected to have been stolen or unlawfully obtained. Although the scope of Section 285 A would seem wider than that of section 285 we think that section 285 A was basically designed to enhance punishment and for forfeiture of goods recovered to the Government, in respect of offences of the type caught by section 285. G The Chief Justice could not have invoked the provisions of Section 285 A in this case.

However the Chief Justice could have invoked the provisions of section 271 of the Criminal Procedure Decree in substituting a conviction for possession of suspected stolen property. We will correct the order of the Chief Justice by setting aside the reference to H section 285 A of the Penal Decree and in place thereof substitute the reference to section 271 (1) (a) of the Criminal Procedure Decree.

Mr. Mtembei otherwise supported the conclusion of the Chief Justice, and submitted that I the accomplice evidence of P.W.1, P.W.2 and P.W.4 was corroborated by the testimony of P.W.3. He also submitted that the sentence of 3 years imposed was not excessive.

In our view, the order of the Chief Justice, as corrected, was justified on the evidence. A We do not think that the terms of 3 years imprisonment was so severe as to call for interference. We dismiss the appeal in its entirety.

Appeal dismissed. B

1988 TLR p41

C

[zRPz]SALUM SURURU NABHANI v ZAHOR ABDULLA ZAHOR 1988 TLR 41 (CA)

Court Court of Appeal of Tanzania - Zanzibar

Judge Makame JA

6th May, 1988
Flynote
Civil Practice and Procedure - Appeals - Application for leave to appeal - Notice filed out of time - No sufficient reason for delay shown - Rule 8 of Court of Appeal Rules 1979.
Court of Appeal Rules -Appeals - Application for leave to appeal - Notice filed out of time - No sufficient reason for delay shown - Rule 8 of Court of Appeal Rules 1979.
Civil Practice and Procedure - Judgment - Who may receive judgment.
-Headnote
The applicant had attended court proceedings until the last hearing date. After the court had informed the parties that judgment would be delivered on a specified date, about two months later, the applicant who was the respondent in the case left for Oman. He was still in Oman on the date of judgment which was received on his behalf by another person who offered no proof that he had been sent by the applicant. The judgment was delivered against the applicant. The applicant went back to Zanzibar about 3 weeks after the judgment. Dissatisfied he sought to appeal but was well out of time. He applied for leave to appeal out of time.
Held: (i) In order to receive judgment for another person, the receiver need not have power of attorney; it would be enough if the representative can produce any convincing proof that he was sent and authorised by the party concerned to receive judgment on the latter's behalf;
(ii) the applicant has failed to advance sufficient reasons to justify leave to file appeal out of time.
1988 TLR p42
MAKAME JA
Case Information
A Application is dismissed.
[zJDz]Judgment
Makame, J.A.: This application arises from a transaction in a financial culture I found interesting. The applicant, resident in Pemba, borrowed from the respondent, in Zanzibar, various sums of money for each of which he issued what was described as a warka, pledging some of his date trees in Muscat. Thereafter the applicant kept on issuing warkas to other people pledging more trees so as to raise more and more sums of money. That complicated matters for the respondent, who eventually had to file a suit in the High Court of Zanzibar to recover shs. 300,000/=. The sum prayed for was duly awarded to the respondent in a judgment delivered by the learned Chief Justice on 16/10/86. On that day the applicant was not in court, but, according to the record, one Abbas Nada Hija, who said he and the applicant were married in the same family, received the judgment, "k.n.y. Mdaiwa" - on behalf of the defendant.
On 17th December, 1986, that is over two months later, the applicant swore an affidavit to say that he was away in Oman when the judgment was delivered and did not return to Zanzibar until 6th November, 1986. He came to know of the existence of the judgment only when he was called to the High Court on 15th November, 1986. Two days later he filed a Notice of Appeal but was advised that he was already out of time.

F At the hearing of this application Mr. Lipiki, learned advocate, represented the applicant, while the respondent appeared in person. Mr. Lipiki submitted, in effect, that the Notice itself was in fact in time because the applicant did not know, and could not have known, of the judgment until on 15th November, 1986. Mr. Lipiki said that the man Abbas Nada Hija was not the applicant's representative, as he had no power of G attorney, and had no business to receive judgment on behalf of the applicant. In reply the respondent, unrepresented as he was, had nothing of moment to say, only that he was wondering what this application was all about, when the applicant had admitted liability and had in fact paid the money.

H I would not go as far as saying that to receive a judgment on behalf of another one would necessarily need a power of attorney, as Mr. Lipiki submitted. He was not able to refer me to any authority. In my view it would all depend on the circumstances and, ordinarily, it would be enough if the representative can produce any convincing proof that I he was sent and authorized by the party concerned to receive judgment on the latter's behalf. In the present case, however,

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MAKAME JA

Hija is shown in the coram as being "k.n.y. Mdaiwa" without any indication as to where A that information came from. "Mdaiwa is mume mwenzangu" seems to be the answer to the only question Hija was asked; and that information, per se, even if true, does not make Hija authorized and entitled to receive judgment on behalf of the applicant. I am satisfied that Mr. Lipiki's submission on this is quite sound, and I would have allowed the B application if there was no other factor to be considered. There is however another factor I have to take into account, and it is this: Going by the record, the parties were both present in court, on 25/7/86, when the hearing was concluded and the case was adjourned for judgment on 16/10/86. The judgment was delivered on the appointed day, C 16/10/86, and if the applicant chose to be away in Oman Arabia, or any other place, and absent from the court, it was his duty to make provisions for him to learn of the outcome of the case soon. It cannot do just to go away and wait until one is called by the court. The Notice the applicant received from the High Court, dated 8/11/86, said D "Madhumuni ya wito utaelezwa baada ya kufika" and one is entitled to surmise, especially as, as far as record went, Hija had already received the judgment k.n.y. the applicant, that the purpose was to make the applicant pay up the decretal amount. If 15th November, 1986 was the day he came to know of the judgment it was the result of his E own lack of diligence and he had only himself to blame. The purported Notice on 17/11/86, if there was one, was clearly out of time and I am not persuaded to hold that the applicant has advanced any credible reason why I should exercise my discretion under Rule 8 to extend time as prayed. F

This application is accordingly dismissed and the applicant is ordered to pay the respondent's costs.

Application dismissed. G

1988 TLR p44

A

[zRPz]CHARLES AOKO v DORINA GIBONGA 1988 TLR 44 (HC)

Court High Court of Tanzania - Mwanza
Judge Sekule J

30th May, 1988
Flynote
B Family law - Divorce - Cruelty - Beatings on two occasions and an unsubstantiated threat by husband to kill wife - Whether cruelty proved - Whether marriage has irreparably broken down - Law of Marriage Act, 1971, s. 107 (2)(c) and (3)(b).
-Headnote
C This was an appeal from the decision of the District Court of Tarime.
The appellant and the respondent were husband and wife. They got married in 1982. They appear to have had four years of happy and peaceful marriage. In 1987 the situation changed to the extent that the respondent instituted proceedings in the Shirati D Primary Court Civil case No. 130 of 1987 seeking divorce. She claimed to have been frequently beaten and threatened and that she had consulted both the family council and the marriage reconciliation board whose decisions she was not satisfied with. Both lower courts granted divorce under section 107 (3) (c) and 107 (3) (b) of the marriage Act E 1971.
Held: (i)The two incidents that are established by the evidence to have happened cannot be said to have been clear indication that this marriage was irreparably broken. They F were the usual wear and tear of married life. They did not amount to cruelty in terms of sec. 107 (2) (c) of the law marriage Act 1971, nor did they fall without the purview of section 107 (3) (b) of the Law marriage Act 1971;
G (ii) on the evidence on record the marriage was not irreparably broken down.
Case Information
Appeal allowed.
No case refferred to:
[zJDz]Judgment
H Sekule, J. The appellant and the respondent were husband and wife. They got married in 1982. They appear to have had four years of happy and peaceful married life. In 1987 the situation changed to the extent that the respondent instituted proceedings in the Shirati Primary Court, Civil Case No. 130 of 1987 seeking divorce.
I It was the respondent's case at the trial that from 1982 - 1985

they lived peacefully. However sometime in 1986, the appellant started beating her daily A and telling her to go back to her parents as she was barren. Their marriage had not by that time been blessed with a child. She contended that she reported these happenings to her parents but they did not take her complaints seriously. In February, 1987 she was B beaten again by the appellant because of money that she had been given by the appellant to keep. The appellant

wanted the money and while she was still looking for it in their house she was beaten. After the incident she absconded from the home and went to her relative at Mgango in Musoma. The appellant followed her and brought her back. Her C father convened a family council to discuss their problems. She had also alleged that the appellant was threatening to kill her. The family council discussed their problems and it resolved that the respondent should go back to her marriage. She was not satisfied with this decision, she therefore took the matter to a marriage reconciliation board. The board after hearing and considering their problems, it also advised her to go back to her D marriage. She was again not happy with the decision and she proceeded to court.

She called three witnesses at the trial to support her case. One of them was one Omwasi Okoro - the chairman of the marriage reconciliation board and another one was her own E father.

The chairman of the marriage reconciliation board testified to the effect they dealt with the parties' problems. That the respondent alleged before them that the appellant was threatening to kill her. An allegation which the appellant denied and she tendered no F evidence to substantiate it. Apart from this allegation, the respondent said they had one other quarrel. It was further his evidence that after they had considered the matter, they advised the respondent to go back to her marriage because they saw that only one G incident had been established. This is what the witness said in response to a question put to him by a second assessor:

Mimi ni mwenyekiti wa Baraza la Usuluhishi. Mdaiwa alikuwa hana makosa na tuliona ni kosa la siku moja. H

Her father testified that the respondent was beaten on two occasions. On the first occasion she was beaten because of money. And on the second occasion it was because she had refused to boil some medicine for the appellant. The appellant was sick. They I too advised her to go back to her marriage. The appellant on his part stated in his testimony at the trial that they had a peaceful marriage for about

A 41/2 years and then the respondent started to be unfaithful to the marriage. He spoke to her about this conduct but that he never beat her for the sake of protecting the marriage. He however, stated that they had two quarrels at the beginning of 1987. One quarrel concerned appellant's money shs. 1,800/=. The appellant contended that the respondent B had hid or stolen that money. The second quarrel concerned the respondent's refusal to boil some medicine for him when he was sick. He further said that he still loved his wife and that though the respondent had had occasion to do wrong things to him he was prepared to forgive. The appellant too called witnesses to support his case. The C substance of their testimony was that they had not seen or heard frequent quarrels between these two people in the course of their marriage prior to the events that gave rise to this case.

D At the end of the case, the trial court found that the appellant had beaten the respondent twice, on the first occasion it was because of the money and on the second occasion it was because of her refusal to boil medicine for the appellant. And that this conduct was wrong and an offence on the part of the appellant under section 66 of the Marriage Act 1971 which forbids

the infliction of corporal punishment on one's spouse. E The trial court further held that the appellant must have threatened to kill the respondent for otherwise how could she have absconded to Mgango.

The court was therefore of the view that the respondent had proved her case and granted F her prayer. In concluding the case the trial court observed as follows:

Kwa hali hiyo ya vituko ambavyo mdai anatendewa na mdaiwa chini ya fungu 107 (2) (c) la Sheria ya Ndoa 5/71 vya kumpiga na kumlalamikia kila mara ni msherati na kumtishia ni G vitendo vya kuvunja ndoa. Hivyo nakubaliana na washauri kuwa ndoa ya wadaawa haiwezi kushamili kama awali inavunjwa.

The appellant was aggrieved and unsuccessfully appealed to the District Court of Tarime H District. In dismissing the appellant's appeal, the appellate District Court held that as the parties were trading blames against each other and since the marriage reconciliation board had failed to reconcile them, then the five years childless marriage was broken down and it accordingly confirmed the divorce granted to the respondent under section I 107 (3) (b) of the Marriage Act, 1971.

The appellant is not challenging this decision before this court.

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SEKULE J

Both parties appeared in person at the hearing of this appeal. The appellant essentially A reiterated what he had stated in his petition of appeal and concluded that in his view the marriage was not irreparably broken down.

On the other hand the respondent admitted that both the family council and the marriage reconciliation Board had advised her to go back to the marriage and that she did not B agree with their opinion because the appellant used to beat her.

The crucial issue for determination is, was this marriage irreparably broken. I have carefully examined and considered the evidence tendered by both parties, at the trial and on this evidence, I am far from being satisfied that this marriage was or is irreparably C broken down.

From the trial record, only two incidents are borne out, by the evidence that is, the quarrels between the parties over the issue of the money and the respondent's refusal to boil some medicine for the appellant. D

The allegation that the appellant threatened to kill the respondent was not supported by any evidence. The inference drawn by the trial court that the respondent must have been so threatened for otherwise why did she abscond to Mgango was in my view without E basis. Going by her own testimony her departure to Mgango seems to have been prompted by the quarrel they had over the issue of money. There was also no evidence from the record to the effect that the appellant constantly complained or accused her of being unfaithful to the marriage. As a matter of fact the respondent herself never F complained or raised this issue in her testimony. It was raised by the appellant himself in an attempt to explain the causes of the problems the marriage started to face after the peaceful era. He stated that the respondent started to be unfaithful and he talked to her over that issue and that he never beat her over it. G

In my view the two incidents that are established by the evidence on record to have happened, cannot be said to have been clear indication that this marriage was irreparably broken. They were in my opinion the usual wear and tear of married life. They did not also amount to cruelty in terms of section 107(2)(c) of the Marriage Act 1971 - the basis H of the trial court's decision. Also and with respect, I am of the view that the facts of this case did not come within the purview of section 107(3)(b) of the Marriage Act, 1971 as the appellate District Court held.
Like the family council and the Marriage Reconciliation I
1988 TLR p48
A Board, on the evidence on record, I am not satisfied that this marriage was irreparably broken down.
The appeal is allowed, the orders of the trial court and the appellate District Court of granting divorce to the respondent are hereby quashed.
B The parties to bear their respective costs.
Appeal allowed.
1988 TLR p48
C
[zRPz]TABU FIKWA v REPUBLIC 1988 TLR 48 (HC)

Court High Court of Tanzania - Dodoma
Judge Samatta J

1st June, 1988
Flynote
D Criminal Practice and Procedure - Sentencing - Penalty section does not mention punishment of a fine - Whether Court has discretion to impose a fine - Section 30 of the Moshi (Manufacture and Distillation) Act, 1966 and s. 27(3) Penal Code construed.
Criminology and Penology - Sentencing - Factors to be taken into account when E sentencing.
-Headnote
The appellant pleaded guilty to the offence of being found in possession of native liquor, moshi, and on conviction was sentenced to five month's imprisonment. She was not given a fine option.
F When addressing the court in mitigation, the appellant, a first offender, said that she had problems that is why she manufactures gongo (moshi).
This was an appeal against sentence. The appeal court considered the law and the circumstance of the case.
G Held: (i) It is a common law principle that where a statute creating an offence lays down in no uncertain terms the sort of punishment to be imposed on offenders against that statute, it is incumbent on the court called upon to enforce the law to act within the H strict language of the law;

(ii) section 30 of the Moshi (Manufacture and Distillation) Act uses the words "shall be liable on conviction to imprisonment" which when properly construed gives discretion to the court to impose an option of a fine sentence;

I (iii) the application of the common law principle (i.e.(i)) must be subject to section 27(3) of the Penal Code which says that a

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person liable to imprisonment may be sentenced to pay a fine in addition to, or instead of A imprisonment;

(iv) an offender is a member of society and quite often a product of social and economic conditions. If his interests and those of society conflict the former must be subordinated to the latter. If however, they can be reconciled the court should embark B upon that course.

Case Information

Appeal allowed to a limited extent. C

Cases referred to:

1. Hattan v R. [1969] HCD 234.
2. Silvanus Leonard Nguruwe v R. [1981] TLR 67.

Rweyongeza, for the Appellant.

Mwambe, for the Republic. D

[zJDz]Judgment

Samatta, J.: On March 10, 1988, the appellant, Tabu Fikwa who, according to the charge-sheet, is aged 33 and was employed as a nurse at the Government Hospital, Dodoma (according to Mr. Rweyongeza, her counsel, however, her title at the hospital E was that of assistant nurse), was, together with five others, brought before the District Court of Dodoma District and charged with unlawful possession of illicit liquor commonly known as moshi, contrary to section 30 of the Moshi (Manufacture and Distillation) Act, 1966. The particulars of offence alleged that the appellant and her co-accused: F

... jointly and together on 7th day of March, 1988, at about 20.30 hrs at Bahi Road within the Municipality, District and Region of Dodoma, were found in possession of 11/2 litres of native G liquor commonly known as moshi.

The appellant's plea to that charge was:

It is true. I was found with native liquor known as Gongo without permit. H

All the appellant's co-accused protested their innocence. Their trial is yet to be completed. The learned District Magistrate entered the appellant's plea as a plea of guilty to the charge laid at her door. I

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A The prosecutor, in accordance with the time-honoured practice, then outlined the facts of the case. He said:

On the 7th March, 1988, at about 8.30 p.m., at Bahi Road in Dodoma one No. B 9457 Detective Corporal Selemani was on duty (patrol) at Bahi road. He found the 1st accused in her

house B where many people gathered, and then discovered that those people were taking local liquor commonly known as gongo. He arrested them all (including) the 1st accused who was also among them and taking the same liquor without permit. The charges were (then) opened C against them as per charge sheet.

The appellant admitted that this outline correctly represented what had happened, whereupon the learned District Magistrate convicted her upon her own plea of guilty. The appellant, who is a first offender, then adressed the court in mitigation. She said very D little. In fact she uttered just one short sentence, which was as follows:

I have got problems, that is why I manufacture gongo.

E Immediately after the appellant had said this, the learned District Magistrate proceeded to sentence her. He said:

The accused is a first offender. I have taken into consideration her mitigating factors, but taking F into account the rempancy (sic) of the offence in the area, the accused is sentenced to 5 (five) months jail.

G Citing Cross and Jones Introduction to Criminal Law, 7th Edn. at p. 379, and Hattan v R., [1969] H.C.D. 234, Mr. Rweyongeza submitted that, having regard to the circumstances of the instant case, the learned District Magistrate erred in not giving the appellant the option of a fine. Supporting the decision of the learned District Magistrate, Mr. Benne, for the Republic, contended, with a degree of plausibility, that no H circumstances existed in this case making a custodial sentence inappropriate.

In this appeal I ask myself this question: Is there any merit in Mr. Rweyongeza's submission? I would answer that question in the affirmative. It is not necessary, I think, to I cite any authority for the proposition that the following principles form part of the law of this country:

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1. An offender is a member of society and quite often a product of social and A economic conditions. If his interests and those of society are in conflict the former must be subordinated to the latter. If, however, they can be reconciled the court should embark upon that course.

2. In determining or assessing sentence what the court must consider is the triad B consisting of the offence, the offender and the interests of society. Thus, the magnitude of the offence and motives to its commission and the character of the offender are some of the matters which the court must have regard to. The court must strive to strike a reasonable balance between the elements of the C triad.

3. When called upon to impose punishment upon the offender a judicial officer would be right in appreciating that the natural indignating of interested parties and of the community at large should receive some recognition in the sentence D he imposes, but he would be wrong - very wrong - if he assesses the sentence simply upn the basis of the indignation. It is not sufficient for punishment to be fair to society, it must also fit the crime as well as the criminal. Righteous anger should not becloud judgment. E

4. While it is impossible to over-emphasize the need for justice to be done, it must always be remembered that mercy, not a sledge-hammer, is justice's concomitant. In Sentencing a fellow mortal, therefore, an insensitively F censorius attitude should be avoided. It is wrong to equate the approach of mercy or plain humanity with maudlin sympathy or misplaced pity for the offender. Mercy is an element of justice itself. It is not unlikely that it was his belief in the correctness of that notion which inspired Willam Shakespeare (in Measure for Measure, Act 11, Section 2) to observe, through Isabella, that: G

> No ceremony that to great ones longs,
> Not the king's crown, nor the deputed sword,
> The marshal's truncheon, nor the judge's robe,
> Become then with, one half so good a grace H
> As mercy does.

5. Deterrence is a well-recognised purpose of punishment, but imprisonment has never been regarded by judges, lawyers or experts in penology as being the only punishment which is I

A appropriate for that purpose. The object of punishment to hurt the offender (the justness of the object is, understandably, a subject matter of serious controversy) can fairly often be met by a substantial fine. The fine has several advantages which the punishment of imprisonment lacks. These are mentioned by Alex Samuels in his article, "The fine: The principles" (see [1970] Crim. B L.R. 201) where he says, inter alia:

"The fine is simple, uncomplicated, adaptable and popular, because it involves no expense to the public, no burden on the prison system, no social dislocation and less C stigma than most other criminal sanctions. Stigma tends to impede reformation."

6. In determining or occasion sentence the court is perfectly entitled to take into D account the necessity of deterring other persons from perpetrating similar offences, but that factor is not the sole or predominant basis for assessment of sentence.

7. Generally speaking, imprisonment is only justified if it is necessary that the E criminal be removed from society. Save where the nature of the offence and the circumstances of its commission call for a custodial sentence, or where the nature of the offence and the circumstances of its commission call for a custodial sentence, or where the court has no discretion in the matter because F the offence attracts a mandatory sentence of imprisonment under the Minimum Sentences Act, 1972, or under any other legislation, the court should seriously consider alternative punishments before sending an offender to prison, especially if he is a first offender.

8. The deterrent effect of a sentence of imprisonment is not always G proportionate to its length.

9. The imposition of a substantial fine can have a deterrent effect and may constitute adequate penalty even in a case of serious nature. Its appropriateness or otherwise always depends upon the circumstances of each case.

H 10. Every reasonable effort should be made to keep first offenders out of prison. Where appropriate, however, the court will send a first offender to prison to demonstrate that crime does not pay or to protect genuine and important interests of the community. A fine will not be imposed on an offender, even a first offender, where that punishment is considered by the court, after having I paid due weight to each of the relevant

factors, including the interests of society, as being inappropriate. A

11. The remorse or repentance, expressed inter alia in a plea of guilty, is a mitigating factor and must be given due weight by the court when sentencing the offender.

12. The prevalence of an offence and the need for sentence to deter the B perpetration of it in future must not be permitted to outweigh the appropriate sentence for the offence itself. Prevalence of offence should be given no more than its due weight. Failure to adhere to that rule may result in offenders being kept in prison for longer than is necessary to protect the interests of the C offenders, of society or both. In ordinary cases the judicial officer should steer a course between the Scylla of misplaced pity and the Charybdis of severity.

It was once observed by a distinguished jurist -with respect, correctly in my view - that, D compared with task of deciding what sentence should be imposed on the offender, trying an accused person is as easy as falling off a log. The difficult task must nevertheless be discharged. The offence which the appellant was convicted of attracts the maximum sentence of five years' imprisonment. Bearing that in mind, it is as plain as a pikestaff, in E my opinion, that Parliament regards the offence as a serious one. It is not surprising that the offence is so regarded.

According to the report of the Government Chemist, put before the learned District Magistrate, those who drink moshi are likely to suffer from the following: F

(a) damage to the eye-sight;
(b) very serious damage to the liver;
(c) damage to the nervous system; and G
(d) general deterioration of health.

It must be correct to say, therefore, that widespread drinking of moshi is bound to have extremely harmful effects on the lives of the drinkers, their families as well as on the life of H the community at large. Seriousness and prevelence of an offence are, however, just two of the many factors which the court is required to take into consideration in assessing sentence. In the present case the fact that the (serious) offence of unlawful possession of moshi is a prevalent one (in Dodoma) had to be weighed with the strong mitigating I factors with existed in the case, to wit:

A (1) the appellant is a first offender;

(2) she expressed contrition by pleading guilty to the charge;

(3) the amount of the illicit spirit she was found in (unlawful) possession of - 11/2 litres - was not considerable;

(4) while the method she chose to use in the war against inflation is B unquestionably condemnable, hard life seems to have been the thing which drove her to desperation; and

(5) she was gainfully employed as an assistant nurse for many years before she foolishly chose to fight inflation by manufacturing and selling moshi.

C The learned District Magistrate appears to have entertained the view, that, because the offence she was convicted of happens to be a common one, the appellant had to receive a severe sentence.

With respect, this was wrong approach in law. I should have thought that the decision of D the Court of Appeal in Silvanus Leonard Nguruwe v Republic, [1981] TLR 67 inflicted a fatal blow on that approach. Speaking through Mwakasendo, J.A. the Court said, at p. 68:

E Prevalence of an offence is indeed a factor which a trial court should always take into account when assessing a proper sentence to impose in any particular case; but it would be contrary to principle to consider this factor either as the predominant or only factor that must guide the F court in its consideration of sentence.

Section 30 of the Moshi (Manufacture and Distillation) Act, 1966 (hereinafter referred to as the Act) which creates the offence the accused was convicted of reads as follows:

G 30. Any person, other than a licensee or a distiller, who has moshi in his possession shall be guilty of an offence and shall be liable on conviction to imprisonment for a term not exceeding five years.

H It leaps to the eye that there is no mention in the section of punishment of a fine. It is an elementary principle of common law that where a Statute creating an offence lays down in no un-certain terms the sort of punishment to be imposed on the offenders I against that Statute, it is incumbent on the court called upon to enforce the law to act within the strict language of the law. The section does

not, in my considered opinion, bring that principle into play. I hold that view because, in A my opinion, the legislature having used the word "liable" in the section, imprisonment becomes the maximum, and not the sole, punishment which can be imposed on the one contravening the section. But assuming that that interpretation of the section is wrong, it B seems to me that the application of the common law principle in this case must be subject to section 27(3)of the Penal Code, which reads:

A person liable to imprisonment may be sentenced to pay a fine in addition to, or instead of, imprisonment. C

That being so, it cannot be doubted, in my opinion, that in the instant case the learned District Magistrate had the discretion at least to impose on the appellant the punishment of a fine. Did

he exercise that discretion judicially? I am decisively of the view, having D given anxious and, I hope, careful consideration to both aggravating and mitigating circumstances in this case, that that question must be answered in the negative.

In my opinion, the learned magistrate ought to have exercised his discretion in E accordance with what was laid down by Georges, C.J. (as he then was) in Hattan v Republic (supra). In the course of his judgment the learned Chief Justice said:

I am quite satisfied that the learned Resident Magistrate was misdirecting himself, when he F stated that "a fine albeit heavy, would not meet the requirement of this case." Wherever a first offender is concerned the emphasis should always be on the reformative aspect of punishment unless the offence is one of such a serious nature that an exemplary punishment is required, or unless the offence is so widespread that severe punishment is needed as a G shock deterrent.

The appellant in that case, an American seaman, stole a radio belonging to a prostitute who he had met on his day-off when his vessel called at D'Salaam. The magistrate's H court sentenced him to six months' imprisonment. The sentence was varied to a fine of shs. 1,000/- or, in default of payment, three months' imprisonment. In my opinion, neither exemplary punishment nor a severe punishment as a shock deterrent was necessary in the instant case. Bearing in mind the existence of strong mitigating factors in the case, I am I decisively of the opinion that the sentence meted out to

A the appellant is manifestly excessive and that deterrent purposes and the interests of society could have been attained by means of imposition of a substantial fine. But since the appellant has already served slightly over half of the custodial sentence imposed on her, it would not be fair to the appellant, in my opinion, to set aside the sentence of B imprisonment and substitute therefor a fine. In my view, the period the appellant has spent in prison serving that sentence is a sufficient punishment for the crime she was convicted and of and an adequate and firm warning to others not to contravene section 30 of the Act. I would therefore, allow the appeal to a limited extent by reducing the C sentence of five months' imprisonment to such term of imprisonment as would result in the appellant's immediate release from custody.

Appeal allowed.

1988 TLR p56

D

[zRPz]RAMADHANI NKONGELA v KASIANI PAULO 1988 TLR 56 (HC)

Court High Court of Tanzania - Mtwara
Judge Kazimoto J

E 2nd June, 1988
Flynote

Limitation - Land under dispute not under cultivation for many years - When limitation period began to run.

-Headnote

F In a suit for encroachment over land, one of the parties argued that the suit was time - barred. It was in evidence that the land in dispute ceased to be used in 1968 but was put to use again from 1984. The court considered when the limitation period began to run.

G Held: The right to sue for encroachment does not arise, however long land stays uncultivated, until it is encroached upon.

Case Information

Appeal dismissed.

H No case referred.

[zJDz]Judgment

Kazimoto. J.: In Langiro Primary Court Civil Case No. 14/85 the respondent Kasian I Paulo sued Gerwin Constantin and Gerion Ndunguru as the defendants for encroaching and occupying his garden. He formerly joined the appellant instead of Gerion

Ndunguru. But the trial Court advised the respondent not to join the appellant in that A case. The respondent won the suit as against Gerwin Constantin and dismissed it as against Gerion Ndunguru. Then the respondent proceeded against the appellant again in Langiro Primary Court Civil Case No. 58/86 also for encroaching his garden and occupying part of it. The trial Court decided to divide the land in dispute and gave each B party half of it. The respondent was dissatisfied and he appealed to the District Court which upheld the decision of the Primary Court in Civil Case No. 38/86. The appellant to this appeal was aggrieved and has appealed to this Court.

The appellant has filed seven grounds of appeal and in my view the most important C grounds which are decisive for this appeal are grounds 3, 5 and 7. In ground 3 the appellant has argued that according to the decision in Civil Case No. 14/85 there were clear boundaries and that both courts erred in holding that the boundaries which formerly existed have been washed away by water. In ground 5 the appellant has argued that D according to the evidence and sketch map the boundaries were clearly shown. Lastly he argued that the law of limitation has no application and should not be used to deprive him of his garden. E

I propose to dispose of the last ground first. In his judgment the learned district magistrate has stated that the land in dispute ceased to be used in 1968 and resumed to be used in 1984, sixteen years had elapsed, the limitation period had elapsed and the land had been nobody's and anyone can occupy it. With respect the learned district F magistrate had misconstrued the provisions of the Law of Limitation Act. As he has correctly stated the land was not in use for 16 years. Had it been that the respondent had been using the land for 16 years clearly there could be great force in his conclusion. In determining whether the period of limitation has run out one has to determine when the cause of action arose. Section 4 of the Law of Limitation Act No. 10/1971 states: G

The period of limitation prescribed by this Act in relation to any proceedings shall, subject to the provisions of this Act, hereinafter contained, commence from the date on which the right of H action for such proceeding accrues.

It is therefore clear that the right to sue for encroachment does not arise, however long the land stayed uncultivated, until it has been encroached upon. According to the evidence, the alleged encroachment and therefore the cause of action took place in I 1983.

1988 TLR p58

KAZIMOTO J

The suit was instituted in 1987 and the period of limitation had not run out. Clearly the A learned district magistrate has erred.

As I have stated the appellant in this appeal was a party in Civil Case No. 14/85 over the same cause of action and he had been struck off by the action of the trial court. In B that case the respondent's suit as against Gerion Ndunguru was dismissed. The appellant is arguing in effect that having decided in favour of the respondent in that case they cannot use double standard by dividing the land into two. He has stated:

Mjibu rufaa hana sababu ya kumegewa Bustani yangu ila Mahakama kama imeona bustani C ni halali yake apewe yote si kummegea.

Apparently the first appellate Court did not appreciate this issue. The witnesses in both D cases were the same. I have gone through the evidence and there is no material difference in the testimony between the two cases. It appears from the evidence that the parties in this case are related and come from the some clan. There is evidence that once E upon a time the land in dispute was cultivated but was abandoned because of over flooding in the area. There is evidence that later the village government called upon the respondent, Gerwin Constantin and Gerion Ndunguru to clear the area and make water trenches on the area in dispute. There is also evidence that while the respondent was F bereaved the land in dispute was encroached into. There is evidence that the appellant gave the disputed area to Gerion Ndunguru who was sued in Civil Case No. 14/85. The evidence of Beatus Nduvuhela in both cases confirmed that their grandfather Holiholi gave the disputed garden to respondent when he was a small boy. Having gone through G the evidence I am satisfied that the decision of the District Court affirming that of the Primary Court in Civil Case No. 58/86 was wrong. The evidence shows that the appellant had no right to give the garden or part of it to Gerion Ndunguru. The garden in dispute is the property of the respondent. That in effect disposes of grounds 3 and 5 of H the appeal.

For these reasons the appeal is dismissed. The decision of the District Court affirming the decision of the Primary Court in Civil Case No. 58/86 is set aside and instead I uphold the decision of the Primary Court in Civil Case No. 14/85 and declare the respondent as the owner of the whole garden in dispute. I

Appeal dismissed.

1988 TLR p59

A

[zRPz]REVOCATUS I. KIDAHA v NATIONAL HOUSING CORPORATION 1988 TLR 59 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Msumi J

4th June, 1988 B
Flynote
Tort - Article destroyed by negligence - Whether the owner is entitled to recover the market value or the value at which the article was bought.
Tort - Damages - Whether substantial damages can be recovered without proof of actual loss. C
-Headnote
The appellant was a legal tenant of the respondent. Without lawful cause, respondents evicted the appellant from his flat, the eviction being effected in the absence of the appellant by forcing open the door and removing household items therefrom. The D respondents admitted the unlawful eviction, but no reinstatement to the flat nor alternative accommodation was offered. Household items removed from the flat during eviction were never returned, including a refrigerator and a gas cooker. The appellant sued in the District Court for recovery of the items or shs 197,875/- as replacement value; Shs. E 2,125/= being special damages incurred to repair the damaged articles; general damages in excess of shs. 20,000/=, and a declaration that he is entitled to alternative accommodation. The District Court awarded him the said shs. 2,125/= as special damages and decreed that he was entitled to alternative accommodation. The claim of F shs. 197,875/= as replacement value was dismissed, but the court awarded him shs. 29,162/=which was the cost of said articles when he bought them in 1974. The claim of shs 20,000 as general damages was rejected. Hence this appeal. G
Held: (i) Where an article has been destroyed by negligence, the owner of that article is entitled to recover from the person who negligently caused the destruction the market value of the article.

(ii) Where there is trespass to goods, substantial damages can be recovered without proof of actual loss. H
Case Information
Appeal allowed.
Cases referred to:

1. Express Transport Company Ltd. v B.A.T. Tanzania Ltd. [1968] E.A. I 443 (at 451).

1988 TLR p60
MSUMI J

2. Interoven Stove Company Ltd. v Hibbaid and Another [1936] 1 All ER A 263
3. Kassaali Bhogadia v M.A. Nasser [1963] EA 610.

Mabere Marando, for the Appellant
Rweyemamu, for the Respondent B
[zJDz]Judgment

Msumi, J.: At the material time appellant was a legal tenant of the respondents' corporation occupying flat No. 187/X along Uhuru/Kigogo roads, Ilala area. It is C uncontroverted that on 10/9/75, without lawful cause, respondents evicted the appellant from the said rented flat. The eviction was effected in the absence of the appellant by forcing open the door to the flat and removing the households from therein. Though later on respondents admitted of the alleged unlawful eviction, they did not redress the wrong. D In other words appellant was neither reinstated to the said flat nor was he offered an alternative accommodation equivalent to the one in question. And despite the appellant's demand, respondents failed to restore to him some of his household items which they removed from the rented flat when they effected the said unlawful eviction. Among these E missing items is a refrigerator and a gas cooker. Hence appellant sued the respondents in the District Court praying for recovery of his missing household items or shs. 197,875/= as replacement value of the said items; shs. 2,125/= being special damages incurred by him in repairing some of his articles returned to him in damaged condition; F general damages in excess of shs. 20,000/= and a declaration that he is entitled to alternative accommodation reasonably equivalent to one from which he had been unlawfully evicted. The District Court sustained the appellant's prayer for shs. 2,125/= as special damage and for the declaratory order that he is entitled to alternative G accommodation. However, his claim for shs. 197,875/= being the replacement value of his missing articles was dismissed and instead the court ordered that he was only entitled to be paid shs. 29,162/= which was the cost of the said articles when he bought them sometime in 1974. Similarly, his claim for general damages in excess of shs. 20,000/= H was wholly rejected. This appeal is against these two findings.

The memorandum of appeal consists of two grounds. Elaborating the first ground Mr. Marando, the learned counsel for the appellant argued that the learned trial magistrate I erred in awarding the appellant the cost of the missing items instead of their replacement value. The aim should be to put the appellant in the

same position he had been immediately prior to the unlawful seizure of the goods. And A this goal can only be attained by awarding him an amount of money equivalent to the value of the said items at the time when they were taken. On the second ground of appeal, the learned counsel submitted that the circumstances of the case are such that B appellant is entitled to damages in excess of shs. 20,000/=. In reply, Mr. Rweyemamu from the Tanzania Legal Corporation argued that what the appellant was entitled to is the actual cost of the alleged goods and not their replacement value. Farthermore the court could not award him the replacement value of the goods in the absence of specific proof C of the alleged value. Similarly, the learned counsel went on to argue, the court was right in refusing the prayer for general damages in excess of shs. 20,000/= as the appellant has failed to establish that he has suffered any damage at all. D

Starting with the first ground of appeal, in essence what the appellant is saying is that he wants the respondents to return to him his missing household articles in the same condition as they had been at the time when they were taken. In the alternative, if for reasons known to

themselves respondents are unable to return to him the said items, E then they should pay him some money equivalent to their market value at the time when they were seized. With respect this prayer is both legally and logically sound. It is consistent with the rationale of awarding damages to a victim of a civil wrong. As far as money can possibly do, plaintiff should be restored in the same condition he had been F immediately before the alleged actionable wrong was committed by the defendant. In the absence of reasonable explanation from the respondents on the whereabouts of the articles in issue, it is logical to assume that the same have been neglegently destroyed by the respondents. In such circumstances the law is quite clear viz. that the owner of such G articles is not only entitled to be paid the market value of such articles immediately before their destruction but also he may be paid any consequential loss resulting from such destruction. This expression is supported by the holding of the then Eastern African Court of Appeal in the case of Express Transport Company Limited v B.A.T. H Tanzania Limited [1968] E.A. 443 at p. 451 which says:

Where an article has been destroyed by negligence, the owner of that article is entitled to recover from the person who negligently caused the destruction the market value of the article I immediately before its destruction, together with any

consequential loss following on the destruction of the article which is not too remote. A Thus appellant's claim for the market value of his missing articles at the time when they B were seized is consistent with a recognised principle of law. The only question in this case is whether appellant has managed to establish that at the time when they were taken, the said articles were worth shs. 197,875/=. These articles were taken on 10/9/75 and according to the testimony of the appellant they were bought sometime in 1974 for shs. 29,162/=. What the appellant is saying is that within a period of about one C year the value of these goods appreciated to shs. 197,875/=. If I may rely on my elementary knowledge in mathematics, this appreciation is about 1000 per cent. I take note of the fact that among the missing articles was a refrigerator, a gas cooker and D some musical gadgets whose value normally appreciates with time. However, I don't agree that within a span of only one year the appreciation of these goods was as much as 1000 per cent. There was an increase in value but not as much as that. It is a historical fact that from the year of independence to sometime in 1978 when we were forced into E the war against dictator Amin's forces, the country had been enjoying reasonable economic tranquility. Unlike the years which followed thereafter, there had been no soaring rises of costs of consumer goods. Hence in this case taking into account the nature of the alleged missing goods I am of the opinion that an increase of 20 per cent of F the original cost is reasonable. Accordingly appellant is entitled to shs. 36,000/= as replacement value of the articles in question immediately after they were unlawfully seized by the respondent about one year after they were bought.

As for the claim of general damages in excess of shs. 20,000/= I think it ought to be G upheld. Contrary to the view held by the learned trial magistrate, in order to succeed on this prayer appellant was not required to prove actual damage. In the English case of Interoven Stove Company Limited v Hibbard and Another [1936] 1 All ER at p.270 the court said: H

An illegal distress has always been a trespass and an action would always lie ..... And where there is a trespass to goods, though no actual damage results, the law gives a right to recover damages not limited to actual damage sustained, but a right to recover substantial damages I even though there be no proof of actual loss .....
1988 TLR p63
This observation was quoted with approval by the Eastern African Court of Appeal in A Kassamali Bhogadia v M.A. Nasser [1963] E.A. 610. On my part I would add by saying that this principle is not only restricted to trespass to goods but it also extends to unlawful denial of one's right of use of land or premises. Thus in the present case whether or not appellant has suffered actual damage, he has the right to recover B substantial damages consequential to respondent's acts of trespass to his goods and the rented flat. Inclined to this view I am awarding the appellant shs. 100,000/= as general damage.
All in all this appeal succeeds with costs. C
Appeal allowed.
1988 TLR p63
D
[zRPz]JOHN NGOMOI v MOHAMED ALLY BOFU 1988 TLR 63 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Msumi J

4th June, 1988 E
Flynote
Administration of Estates - Execution of a will - Whether proper to choose any person to witness the execution under customary law- Essence of witnesses especially when the testator is old and illiterate.
Administration of Estates - Fraud - Whether fraud vitiates the validity of the will. F
-Headnote
Respondent petitioned the Primary Court for letters of administration in respect of the estate of the deceased Hadija Manzi. The deceased left a house situated along Uhuru G Street, Dar es Salaam. While the respondent's petition was pending, appellant filed objection claiming that the said house was given to him by the deceased in her will executed before her death in the presence of witnesses who testified before the court in his favour. The genuineness of the will was disputed, hence dismissed in both lower H courts. Hence this appeal.
Held: (i) The requirement that at least half of the number of witnesses to a will executed under customary law must be related to the testator is intended to act as a safeguard against fraud; I
(ii) where a will is surrounded by fraud, it is void.
1988 TLR p64
MSUMI J
Case Information

Appeal dismissed.
No case referred to.
Lamwai, for the appellant.
Muccadam, for the respondent.
[zJDz]Judgment
Msumi, J.: Respondent petitioned to the Primary Court for letters of administration in respect of the estate of the deceased Hadija Manzi. Among other things, deceased left a house situated along Uhuru Street, Dar es Salaam. While the respondent's petition was pending, appellant filed objection claiming that the said house was given to him by the deceased vide her will executed before her death in the presence of four witnesses. All the alleged four witnesses testified before the court of the said Will. However, the court was not satisfied with the genuineness of the alleged Will hence dismissed the appellant's claim over the house. He unsuccessfully appealed to the District Court. Hence this is his second appeal.
In dismissing the appellant's claim both lower courts were greatly influenced by the fact that none of the four witnesses to the alleged Will was related to the deceased. To the contrary, three of them appear to have some relation with the appellant. This observation was strongly attacked by Lamwai, the learned counsel for the appellant. He argued that since deceased had no relatives, it was quite proper for her to choose any person to witness the Will. With respect, I don't agree with this argument. The requirement that at least half of the number of witnesses to a will executed under customary law must be related to the testator is intended to act as a safeguard against any possible fraud against the testator and the lawful heirs to the estate. In this case it is not true, as the learned counsel for the appellant wants us to believe, that the deceased had no relatives when she allegedly executed the Will in question. According to the record four people, including the respondent, testified before the Primary Court claiming that they were related to the deceased. For example respondent testified, inter alia, that his mother and that of the deceased were sisters. The claims of all these witnesses have not been countered by any evidence.
But even if deceased had no relatives at the material time, the need to dispel the possibility of fraud on the Will still remains. For this reason, I totally associate with the lower courts' suggestion that in the absence of the deceased's relatives, her ten cell leader ought to have been included as among the witnesses to the alleged
1988 TLR p65
MSUMI J
Will. This requirement was particularly necessary in this case bearing in mind the fact that deceased was a very old illiterate woman and at the time when she allegedly executed the Will she was bedridden with long time illness. This fact reasonably explains why Mr. F.S. Mbuya, the learned advocate who drew the Will had to go to the house of the appellant where the deceased was staying to get the Will executed.
Besides the alleged Will not being witnessed by relatives of the deceased, there are three other noticeable factors which make the Will suspect. First it is in evidence that prior to the alleged Will, deceased had executed two wills in respect of the house in question. In the first will she

had given the house to her husband. Later on she executed another will in which she specifically revoked the grant of the house to her husband and instead she donated the said house as a Waqf. Both wills were executed before Ilala Primary Court according to the rules of Islamic Law. Appellant was aware of this fact. Hence in D the absence of any reasonable explanation it is amazing to note that deceased had freely decided to depart from her previous practice of executing her wills before the Primary Court in accordance with Islamic law. The fact that in her second will, deceased donated the house as a Waqf clearly expresses her intention to have her personal E matters governed by Islamic law.

Secondly, according to the evidence of the appellant and four witnesses to the Will, the advocate who drew the Will had to go to where the deceased was staying for the purpose of executing the Will. It would appear that that was the only time when the F advocate met the deceased in connection with the Will. In other words when the advocate went to see the deceased on the alleged day he had already drawn the Will ready for execution. The question which still remains unanswered is when and where did the learned advocate confer with the deceased before he drew the Will. Or does it mean G that all the transactions, that is getting deceased's instruction, drafting of the Will, typing it and the execution were done on the same occasion. I find such suggestion rather odd in that it implies that the learned advocate had to move his office, that is his secretary together with the typewriter, sheets of paper and his office seal, to mention a H few, to the house of the appellant where deceased was bedridden. And even more odd, this suggestion means that while the advocate was conferring with the deceased and the Will was being typed all the four witnesses had already been lined up ready to put their I signatures on it. This sounds more of an operation than routine office working practice.

1988 TLR p66

MSUMI J

Thirdly, according to the record, deceased died in April 1985. And under the alleged A Will appellant was appointed administrator of the deceased estate on 9/1/85. Under this circumstance one would have reasonably expected the appellant to take the necessary legal steps in order to effectuate the terms of the alleged Will. For example appellant was B expected to file probate administration cause in the appropriate court. It is thus surprising to note that appellant took no such step and instead he remained quiet till over one year later when he raised objection against the respondent's application for letters of administration. This dilatoriness can be explained by the reasonable possibility that the C alleged Will was drawn and executed after the death of the deceased. I say this because of the evidence of the three of the four witnesses to the alleged Will regarding the date of the death of the deceased. To the astonishment of the Primary Court, these three D witnesses positively testified that deceased died in April 1986. At the material time all these witnesses were tenants in the house in question hence they were bound to get first hand information of the death of their landlady. As deposed in the alleged Will, all these three witnesses are literate and responsible people. One of them is described as E administrator while the other one is "a consultant". Hence their positive assertation that deceased died in April 1986 while deceased died in April 1985. The lapse of time was too short to be confused. Actually what

the witnesses were saying is that deceased died about three months previous to the time they were giving their evidence. F

Appearing for the respondent, Mr. Muccadam submitted that the applicable law in this case is Islamic law and since appellant is a christian he cannot inherit the estate of the deceased who is a moslem. Admittedly this is a strong argument. However, I don't think G it is necessary to pursue this argument in order to determine this appeal. Like the two lower courts, I have decided to confine myself to the question of genuineness of the Will in issue. I am of the considered view that the cumulative effect of all the factors pointed out in this judgment renders the alleged Will suspect. The circumstances surrounding the execution of the said Will irresistibly lead to the conclusion that there are some fraudulent H conducts involved. This appeal is therefore dismissed with costs.

I Appeal dismissed.

1988 TLR p67

A

[zRPz]BEATRICE NJOWOKA v EVARISTUS NAMBUNGA 1988 TLR 67 (HC)

Court High Court of Tanzania - Mtwara
Judge Kazimoto J

6th June, 1988

Flynote

Family Law - S.160 of the Law of Marriage Act, 1971 - Whether the section can be invoked B to legitimise a child born out of wedlock - When a child born outside weldlock can be legitimised.

Family Law - Law of Persons - S.181 of the Law of Persons GN 279/63 - The effect of non-compliance with the provision - Ss. 183 and 184 - Woman is given exclusive and final C say to name the father of the child.

-Headnote

The respondent unsuccessfully sued the appellant for custody of a child in the Primary Court, but his appeal was allowed in the District Court. Aggrieved, the appellant D appealed to the High Court. The Appellant and respondent were friends and it was during that relationship that the appellant got pregnant and a child, now in dispute, was born. Their intention had been to marry, but the appellant changed her mind. Hence the dispute over the child. The Primary Court applied the Law of Persons in dismissing the E respondent's claim on grounds of respondent's non-compliance with the customary Rules embodied in G.N. 279/63. The District Court held that the respondent complied with s. 181 of the G.N. 279/63. That court based its decision on s.160 of the Law of Mariage Act, 1971. The appellant's appeal revolved around s. 181 of the Law of F Persons and she contended that the purported payment by the respondent was infeffectual because it was made after the child had weaning.

Held: (i) Section 160 of the Law of Marriage Act, 1971 does not deal with status of G children;

(ii) under section 181 of the Law of Persons, payment of money to legitimise a child must be made before the child has weaned;

(iii) sections 183 and 184 of the Law of Person G.N. 279/63 give the woman H final say to name the father of the child.

Case Information

Appeal allowed.

Case referred to. I

1. Richard Mapesa v Rashid Bwana [1978] LRT n.4

1988 TLR p68

KAZIMOTO J

[zJDz]Judgment

Kazimoto, J.: The respondent sued the appellant for custody of a child in the Primary A Court. He lost the suit with costs. He appealed to the District Court which allowed his appeal. The appellant was aggrieved and she has appealed to this court. The appeal was heard on 2/6/88. The appellant appeared in person, the respondent indicated that he did B not wish to be heard on appeal. I proceeded with the hearing.

According to the evidence on record which the trial court accepted the appellant and the respondent were friends and during their friendship the appellant got pregnant and a C child, now in dispute, was born. This was on 11/11/83. It appears from the evidence that they lived together. The respondent stated that they intended to marry each other but the appellant had changed her mind. Hence the claim over the child.

The Primary Court applied the Law of Persons in dismissing the respondent's claim D stating that the respondent did not follow the customary rules as embodied in Government Notice No. 279 of 1963. The first appellate court held that the respondent had complied with section 181 of the Law of Persons and that the father of the appellant had refused to accept Shs. 300/= paid by the respondent. He also based his decision on E section 160 of the Law of Marriage Act 1971. The appellant's appeal to this court mainly centres on section 181 of the Law of Persons. She has argued in effect that the purported payment by the respondent has no legal effect as the payment was made on 23/7/85 after the child had ceased weaning. F

It is quite clear from the evidence on record that the appellant and the respondent are not married. There is evidence that the appellant and the respondent were friends. The District Court and the trial court found that the appellant and the respondent lived under circumstances that there was a presumption of marriage under section 160 of the Law of G Marriage Act. The appellant has strongly denied this. I am satisfied that she has been lying. There is evidence which established that the appellant had cohabited with the respondent under assumption that they were married. The child in dispute was born when the appellant and respondent were living together. H

In his judgment the learned resident magistrate who heard the appeal stated that as the child was born under the circumstances described above then he invoked section 160 of the Law of Marriage Act to the effect that the child belongs to the respondent. The issue is whether the

learned resident magistrate is right in his conclusion. I have no doubt in my I mind that he has erred. The child in question

1988 TLR p69

KAZIMOTO J

is an illegitimate child. Section 160 of the Law of Marriage Act does not deal with status A of children. It deals with maintenance. It enables a woman and her children born during such cohabitation to apply for maintenance when such marriage has been rebutted. In no way does the Law of Marriage Act deal with the status of illegitimate children. B

In Richard Mapesa v Rashid Bwana [1978] LRT n.4 the appellant sued the respondent for a declaration that the children born to his wife while living with the respondent were his and an order that they should be in his custody. In that case the wife with whom the respondent lived and with whom he had children was legally married to C the appellant. The wife deserted the appellant and went to cohabit with the respondent who fathered the children. The marriage between the appellant and his wife had not been dissolved. In dealing with the status of these children the High Court held: D

The evidence before the trial court therefore conclusively proved that the children were fathered by the respondent. The respondent in fact did not dispute this. Since it was established that the children were fathered by the respondent, the legal presumption of legitimacy of children E born in wedlock was thereby rebutted. This means that the two children are illegitimate. Since the Law of Marriage Act 1971 makes no provisions for the status of illegimate children, the court has to resort to the Customary Law of the parties to resolve the issue as to whom the children belong. F

In view of the above decision with which I agree I hold that the child being illegimate the learned resident magistrate erred in declaring it as the respondent's child under the Law G of Marriage Act 1971.

In her memorandum of appeal the appellant attacked the decision of the learned resident magistrate in holding that under customary law the respondent is entitled to the custody of the child. In his judgment the learned resident magistrate said this: H

Section 181 of the Law of Person G.N. 279/63 state that when such children are born during the said type of marriage then in order to legitimise a child must (sic) pay Sh. 100/= to the father of the girl and that that should be done before the child has left breasts (about two years I since birth).

1988 TLR p70

KAZIMOTO J

He went on to note that the respondent tried without success to pay Shs. 300/= to the A appellant's father who refused to accept the money. There was evidence that appellant's father refused to accept the money. He went on to hold that the refusal by appellant's father to accept the money was immaterial. The appellant had contended that the payment was ineffectual in law as the respondent paid the money after the child had B weaned.

Section 181 of the Law of Persons G.N. 279/63 provides:

181 A. A father has the right to legitimize his illegitimate children at any time by marrying their mother. C

B. If a man wishes to legitimize his child without marying its mother he can do so before the child is weaned by paying Shs. 100/= to the girl's father.

Clearly the respondent could legitimize his child by marrying the appellant or by paying D Shs. 100/= to the father of the appellant. The appellant does not want to be married to the respondent. The respondent could have legitimated the child by paying to appellant's father Shs. 100/=. The issue is whether the respondent paid the money before the child E had been weaned. No direct evidence has been led on this. The learned resident magistrate stated in his judgment that a child stops breast feeding about two years. That could be his own personal experiment but there is no evidence on record to support this F finding. In absence of any evidence I am not prepared to agree that a child stops breast feeding in about two years. There is however evidence that the child was born on 12/11/83. The respondent wrote a letter to the appellant's father on 23/7/85 declaring himself that he is the father of the child the appellant gave birth to. The appellant's father G rejected the respondent's overtures on 28/7/85. In her submission before me the appellant stated that by the time the respondent attempted to pay the money to her father the child had stopped weaning. She also stated that by then the matter had been referred to the Welfare department. If respondent paid the money after the child had weaned the H payment was ineffectual as paragraph B of section 181 of the Law of Persons has not been complied with. In my judgment I hold that the learned resident magistrate errred in holding that the respondent had legitimated the child in accordance with section 181 of the Law of Persons.

There is one aspect which I have noted that escaped the attention of the learned resident I magistrate. In her evidence the

1988 TLR p71

appellant stated that the man who made her pregnant is not the appellant. She testified A that she had a number of men who had amorous association with her. She therefore denied that the respondent is the father of the child. Her evidence ran like this:

Huyu mdai namfahamu kama ni mfanyakazi mwenzangu tumefanya kazi pamoja. Katika B madai hayo huyu mtoto wangu nimezaa na wanaume wengine. Mwanaume niliyezaa naye namjua mimi siyo yeye.

Sections 183 and 184 clearly gives the final decision to a woman to nominate the man C who made her pregnant even if she falsely accuses a man of making her pregnant. Her word carries the day and the man has the ardous duty to discharge the allegation. As the appellant has named another man as the father of the child the respondent has to prove, and such proof is lacking in this case, that he is the man and only man who made the D appellant pregnant. The learned resident magistrate did not direct himself to these provisions and had he done so he would not have come to the conclusion he did.

As a result and for the reasons I have stated the judgment of the District Court which cannot be upheld is set aside and I allow the appeal with costs and uphold the judgment E of the trial court.
Appeal allowed.
1988 TLR p71
F
[zRPz]ALEXANDA KILLIAN v LINUS KINUNDA 1988 TLR 71 (HC)

Court High Court of Tanzania - Mtwara
Judge Kazimoto J

9th June, 1988 G
Flynote
Civil Practice and Procedure - Assessors - Change of assessors during trial - Section 37 (2) of the Magistrates Court Act 1984 - Whether failure of justice occasioned. H
-Headnote
The Respondent sued the appellant in Mkumbi Primary Court in Mbinga District for the unpaid balance of Shs. 2,000/= being the price of a cow. The appellant was ordered to pay the amount, hence this appeal. Before dealing with the merits of the case the I Judge observed that there was a change of assessors during the trial. On
1988 TLR p72
KAZIMOTO J
22/10/85, the assessors who sat with the trial magistrate were Felix Kapungu and Vicent A who heard the evidence for the Respondent until he closed his case. Then the case was adjourned for defence which was fixed on 21/11/85. On that day, the assessors were H. Wandela and V Nusuhela, the appellant did not appear though he was duly B served. The trial Court decided to close the appellant's case, and summed up the case to the assessors who both found for the respondent. The issue is whether the proceedings are irregular and if so whether the irregularity is incurable.
Held: (i) As a matter of practice it is irregular to change assessors during trial; C
(ii) however the irregular procceedings can be upheld if no failure of justice has been occasioned thereby. But in this case the irregularity occassioned a failure of justice.
Case Information
Proceedings quashed. D
Case referred to:
1. Arobogast Fundi v Masudi Zaidi [1980] T.L.R. no. 125. E
[zJDz]Judgment
Kazimoto, J.: In Mkumbi Primary Court in Mbinga District the respondent sued the appellant for Shs. 2,000/= being the unpaid balance for the price of a cow. The appellant was ordered to pay

the amount claimed. He unsuccessfully appealed to the District Court. He is now appealing to this court. He has submitted seven grounds of F appeal.

Before deciding whether I should deal with the appeal on merits I have to decide on one point first. I have noted that in this case there was a change of assessors during the trial. G On 22/10/85 the assessors who sat with the trial magistrate were Felix Kapungu and Vicent Nusuhela. They heard the evidence for the respondent until he closed his case. Then the case was adjourned for defence which was fixed on 21/11/85. On that day the assessors were H. Wandela and V Nusuhela. The appellant did not appear though he H was duly served. The trial court decided to close the appellant's case and summed up the case to the assessors who both found for the respondent. The issue is whether the proceedings are irregular and if so the irregularity is incurable.

As a matter of practice assessors during trial should not be changed. In this case there I can be no doubt that Wandela's participation in the trial on 21/11/85 was irregular. The issue is

whether there has been a failure of justice in this case. Section 37(2) of the Magistrates' A Courts Act 1984 has provision to the effect that no decision or order of a Primary Court or a District Court shall be reversed or altered on appeal or revision on account of an error, omission or irregularity in the proceedings before or during the hearing or in such decision or order unless such error, omission or irregularity has in fact occasioned a B failure of justice. It is clear that an irregular proceeding can be upheld if no failure of justice has been occasioned thereby. In order to decide the issue one has to ask a further question if Wandela could have properly decided the case. In the case of C Arobogast Fundi v Masudi Zaidi [1980] TLR 125 where the facts of the case were exactly the same this court (Lugakingira, J.) decided that there was no failure of justice in the change of assessors. I have some difficulties in agreeing with that decision. Wandela in this case as the other assessor in the case cited above never heard the evidence of any D witness. He did not know the case for both the parties in the case. After the summing-up he could not give any meaningful and independent opinion. He was the first to give his opinion. In his opinion he found that the appellant was liable. Wandela was in my opinion incapable, without hearing the evidence of the witnesses in the case reach a E just decision. Nusuhela concurred with Wandela, who never heard the witnesses. In my considered view I find that the irregularity in this case has in fact occasioned a failure of justice and I, with greatest respect, dissent from the decision in Arobogast Fundi v Masudi Zaidi (supra).

For these reasons the proceedings are quashed and if the parties wish they can bring a F fresh suit. I make no order as to costs.

Order accordingly.

G

[zRPz]GENEROZA NDIMBO v BLASIDUS YOHANES KAPESI 1988 TLR 73 (HC)

Court High Court of Tanzania - Mtwara

Judge Kazimoto J

10th June, 1988 H

Flynote

Family Law - Gifts given in contemplation of marriage which fails to take place - Whether can be claimed - S. 71 of the Law of Marriage Act, 1971 - Proof of the intention of the gifts I necessary.

Evidence - Witnesses - Whether court may call witnesses.

1988 TLR p74

KAZIMOTO J

-Headnote

The respondent successfully sued the appellant in Primary Court for breach of promise A to marry and the return of gifts allegedly given to her in contemplation of marriage. She appealed to the District Court but lost with costs. In the court of first instance, the respondent claimed six bags of beans, ten bags of maize one sponge mattress, a bamboo B basket, a sieve and several other things. The parties cohabited in concubinage from 1984 to 1986. Aggrieved by decisions of lower courts the appellant has appealed to this court.

Held: (i) A suit may be brought for the return of any gift made in contemplation of marriage which has not been contracted; C

(ii) the respondent must prove to have given the gifts to the appellant on the condition that the parties intended to marry;

(iii) it is the duty of the parties to a suit to prove their claim. The Court can only summon witnesses if asked by the parties to do so. D

Case Information

Appeal allowed.

No case referred to. E

[zJDz]Judgment

Kazimoto, J.: The repondent successfully sued the appellant in the Primary Court for breach of promise to marry and the return of gifts he allegedly gave her in contemplation of marriage. Her appeal to the District Court was dismissed with costs. She is now appealing to this Court. F

In the Primary Court the respondent claimed six bags of beans, ten bags of maize, one sponge mattress, a bamboo basket, a sieve and a number of other things. It was also stated that the respondent took a goat to the appellant's father. According to the G respondent's evidence they cohabited in concubinage from 1984 to 1986. The appellant had vehemently denied this. I think she is lying. There is evidence to support the finding of the Courts below that the appellant and the respondent had been cohabiting in concubinage for the period in question. The issue is whether the Courts below were right H in deciding that what the respondent claimed were gifts given in contemplation of a marriage which failed to take place.

Section 71 of the Law of Marriage Act 1971 provides:

A suit may be brought for the return of any gift made in contemplation of a marriage which has I not been contracted,

where the court is satisfied that it was made with the intention on the part of the giver that it A should be conditional on the marriage being contracted but not otherwise.

The respondent had to prove that he gave the gifts to the appellant and the Court must B be satisfied that the gifts were made on the condition that the parties intended to marry.

In his evidence at the trial the respondent stated that he had been living in concubinage with the appellant from 1984 to 1986. He stated in his evidence that in 1986 their relationship with appellant began to become icy. He referred the matter to a conciliation C board. He also stated that before the matter was reconciled the appellant's mother went to harvest beans they cultivated in the shamba. He testified that they cultivated together for two years and then he went on to give the number of bags they got and the D value thereof. It is therefore clear from the evidence on record that these were not gifts. These were what they earned through their joint efforts. He is trying to apply for division of what they had earned together. There was no evidence before the trial court that the respondent gave gifts to the appellant with an intention that the respondent would marry the appellant. I hold therefore that what the appellant and respondent harvested E from the shamba during the two years of their cohabitation was not a gift and the respondent is not entitled to have it returned. That disposes of ground one and two of appeal. F

In ground three the appellant contended that the trial court and the first appellate court failed to call the appellant's brother as a witness. It is the duty of each party to prove his claim in Civil Case. The court can only summon witnesses if the court is asked to do so. The appellant called four witnesses. She was not prevented to call her brother Nathaniel G Januari Ndimbo if she thought that his evidence would be material to the case. That failure could not be blamed on the Courts. That ground has no merit.

As the main grounds of appeal have succeeded the judgments of the trial court and the District Court cannot be upheld. They are set aside. The appeal is allowed with costs. H

Appeal allowed.

A

[zRPz]TASIANARU RUTASHOBORWA v TYPHON RUTASHOBORWA AND BONIFACE KYAMWANGILE 1988 TLR 76 (HC)

Court High Court of Tanzania - Bukoba
Judge Munyera J

17th June, 1988 B

Flynote

Land Law - Return of purchase price - Difficulties in raising the money - Whether sufficient reason for the Trial Court to threaten to foreclose the right of redemption.

Land Law - Appellate Jurisdiction - Whether judge can assume powers of a District Magistrate - Judicature Ordinance.

-Headnote

The appellant was the plaintiff in the Urban Primary Court where she sued both respondents for redemption of a shamba. The appellant and her husband had seven children in their marriage. The husband sold the shamba leaving the children with nothing. For the benefit of the children she decided to redeem the shamba. The suit was in her favour and nobody appealed against the decision. But nevertheless she was told to return the purchase price. She had problems raising the sum and the Trial Court threatened to foreclose her right of redemption. She sought to appeal to the District Court but was told that she was time barred whence she decided to file an application for leave to appeal out of time which was enventually dismissed. Being aggrieved by the dismissal, she decided to pursue a further appeal to the High Court.

Held: (i) There was no reason for foreclosing her rights to redeem the shamba;

(ii) under the Judicature Ordinance, the Judge may assume the position of the District Magistrate.

Case Information

Appeal allowed.

No cases referred to.

[zJDz]Judgment

Munyera, J.: The appellant was the plaintiff in Urban Primary Court. She sued the two respondents for redemption of a shamba. It was agreed that the first respondent is the appellant's husband and the second respondent just an outsider. At the time of filing the suit the appellant and her husband had seven children in their marriage. It was her case that the husband sold the only shamba they had to

the second respondent leaving the children with nothing for the future. On behalf of the children she sought to redeem the shamba. She won the suit and nobody appealed. She was told to pay Shs. 20,000/= purchase price. She got into difficulties in raising the money and the trial court threatened to foreclose her right of redemption. She sought to appeal to the District Court but she was told she was out of time. She filed an application for leave to appeal out of time but it too was dismissed. She appealed to this court.

In reading the judgment of the trial court I found she was given time up to 30/4/83, a period of 6 months, to pay the purchase money or else the sale be declared absolute. It appears she was unable to pay the money within the time given. When making her submissions before me she produced four Exchequer Receipts on which she deposited the money in the District Court as follows:-

Receipt No;	Date:	Amount
566281	11/3/83	4,000
566287	23/3/83	5,000

56629 28/4/83 5,000
789212 23/5/85 6,000
Total 20,000 E

That being the case there is no reason for foreclosing her rights to have the shamba back. This is a case where the interests of children are at stake because of their father's recklessness. The appellant should be given every assistance. The appeal is allowed but there is no need for her to appeal to the District Court. F

In exercise of my powers under the Judicature Ordinance I assume the position of the District Magistrate and order that the money the appellant deposited be paid to the second respondent immediately and he also do surrender the shamba to the appellant on G receipt of his purchase money. If there be any claim for improvements it should be directed against the first respondent.

H Appeal allowed.

1988 TLR p78

A

[zRPz]USI ATHUMANI MATU v REPUBLIC 1988 TLR 78 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mustafa JJA, Makame JJA and Omar JJA

23rd June, 1988 B

Flynote

Criminal Practice and Procedure - Evidence - Assessment of - Judge departs from his assessors in assessing evidence - What judge should do - Baland Singh rule of practice.

Evidence - Assessment of - Judge departs from his assessors in assessing evidence - C What judge should do - Baland Singh rule of practice.

-Headnote

The appellant was charged with and convicted of murder. After close of the hearing of D the case one assessor opined that the appellant was not guilty of murder. The second assessor was of the view that the evidence established the offence of manslaughter. The learned judge, on the evidence, was convinced that the appellant was guilty of murder as charged. The judge recorded his reasons for departing from his assessors in assessing the evidence and convicted the appellant as charged. E

On appeal the appellant charged that the judge erred in departing from his assessors in assessing the evidence.

Held: (i) The learned trial judge in this case complied with the Baland Singh rule of F practice and that he gave good and convincing reasons for reaching a different conclusion from those of his assessors;

(ii) the proved facts showed that the offence of murder was established.

Case Information

Appeal dismissed. G

Cases referred to:

1. Charles Segesela v R. Crim. app. No. 13 of 1973 Court of Appeal for E. Africa (Unreported). H

2. Baland Singh vR. (1954) 21 EACA 209.

Mneney for the appellant

Sengugi for the Republic

[zJDz]Judgment

Makame, Mustafa, and Omar, JJ.A.: The appellant Usi Athumani Matu was I sentenced to suffer death upon his conviction

for murder by the High Court, Kyando, J., sitting at Mtwara. He is appealing against that A decision and Mrs. Mneney, learned Counsel, appeared on his behalf before us. Mr. Senguji, learned State Attorney who represented the Republic, resisted the appeal.

The appellant was at the material time a school teacher at Ngorongoro Primary School B in Newala District. On 1st February, 1983, at a pombe shop he saw the deceased who had stopped for the night at the village, Kitama Cha Pili, on his way to some other village to go and purchase some fish. The appellant conversed with the deceased before the appellant left the place, only to return after a brief while with the Village Chairman C who told the deceased that he was under arrest. The appellant said that the deceased had stolen his, that is the appellant's, clothes. The deceased was taken to the Chairman's house where it was decided that he should be escorted to the nearby Police Station at Nyamamba.

P.W.3 Salumu Nayava, a cousin of the deceased and who was travelling with the D deceased for the fish-buying, told the trial court that after they had covered only about three hundred metres from the Chairman's home the appellant, who was about five paces from P.W.3, cried out "Thief! Thief! Thief!" and started hitting the deceased several times on the head with a stick the thickness of P.W.3's wrist. A crowd of people E came in response to the alarm raised by the appellant. P.W.3 was clear that this was after the appellant had started assaulting the deceased. There was a general pushing around and a great deal of commotion. The crowd moved on towards the Police Station and when the appellant hit the deceased again with the stick, again on the head, the F deceased collapsed. The crowd then dispersed and the appellant also disappeared. The appellant conceded in his evidence that he went away from the scene, but he said that this was because he went back to the Chairman's house to go and fetch a letter to the Police. Another person who said he was present when the appellant attacked the G deceased was P.W.4, Hassani Nammenge, the deceased's brother-in-law. His testimony was not identical with that of P.W.3 and this fact formed the basis of an attack by Mr. Kisaka, learned Defence Counsel at the trial. The learned trial judge dealt with H this matter in the course of his judgment and was satisfied that the differences between the testimony of P.W.3 and that of P.W.4 were the type one would ordinarily find when two people relate an incident in circumstances like those which obtained in this particular case, and that they did not detract from the reliability of the Prosecution case as a whole. I

Mrs. Mneney argued two grounds of appeal before us. She
1988 TLR p80
MAKAME JJA, MUSTAFA JJA AND OMAR JJA
submitted that the conditions for identifying the appellant as the assailant were far from A ideal. Her second argument was that, in any event, there was no evidence from which to hold that the assault upon the deceased was committed with malice aforethought, so that at most the appellant should have been found guilty of Manslaugter, and not of murder. B
Mr. Senguji responded by saying that the offence of murder had been proved: Not only was the appellant the first person to hit the deceased but he was also the person who raised the alarm which made the crowd of people converge on the scene and participate in the assault. C
The learned trial judge closely considered the evidence given by the appellant and was satisfied that it did not stand to scrutiny. As the learned trial judge remarked, and we respectfully agree, "Under cross-examination he (the appellant) was completely D shattered". Studying the evidence closely as we did, we came out with the same impression ourselves. The appellant's story was that the deceased was injured when the crowd arrived. He, the appellant did not cry out "Thief" and did not take part in the assault. The appellant's version of the facts postulates the presence of two crowds with E opposing intentions: There was this crowd which attacked in a bid to release the deceased and for that reason this crowd started by assaulting the militiaman in whose custody the deceased was. We wish to pause here and observe that if that was so the militiaman would have been a very useful witness for the defence, but he was not called. F
There was also a second crowd, which attacked the deceased. The appellant broke down in cross-examination as to which crowd came from where and did what. Now he says that the people who came from the houses lining the route were the ones who were intent upon rescuing the deceased. Then he says the people with whom the appellant and G others had left the Chairman's house were the ones who wanted to save the deceased. The ones from the houses along the route were the ones who wanted to beat him. The learned trial judge was satisfied that the appellant contradicted himself because he was telling lies. The learned trial judge quite properly went on to direct himself that the H appellant's lies could not however form the sole basis for his being convicted. The learned judge was, satisfied, rather, on the strength of the evidence by the Prosecution that appellant had indeed assaulted the deceased as alleged.
None of the two gentlemen assessors who sat with the learned High Court judge advised I that the appellant was guilty of Murder.
1988 TLR p81
MAKAME JJA, MUSTAFA JJA AND OMAR JJA
One gentleman assessor found the appellant Not Guilty of any offence at all, while the A second gentleman assessor opined that the appellant was guilty of Manslaughter only. In effect therefore the learned trial judge disagreed with both his assessors. In such a situation it is a rules of practice for the judge to state his reasons for disagreeing with the assessors (See Charles Segesela v R. Criminal Appeal No. 13 of 1973 decided by the B Court of Appeal for East Africa). Especially where the assessors have given reasonable grounds for their opinions it is desirable that the judge should clearly record his reasons for differing with the assessors. (See Baland

Singh v R. (1954) 21 C E.A.C.A. 209). In the present case the first gentleman assessor was bothered by the fact that P.W.4 had contradicted P.W.3 as to whether there was a little moonlight or no moonlight at all; and whether the two witnessess merely heard the appellant assaulting the deceased or actually saw him do so. On his part the second gantleman assessor was D satisfied that the appellant did assault the deceased and that he was the first person to do so. Not only that, but also that it was the appellant's cries of 'Thief' which summoned the crowd to the scene, and that the villagers also beat up the deceased. He expressed the opinion that although the appellant was the one who assaulted the deceased first, and E was also the one who caused the others to assault the deceased, the appellant did not kill the deceased 'intentionally'. He found the appellant guilty of Manslaugher only.

We are satisfied that the learned trial judge in this case complied with the Baland Singh F rule of practice and that he gave good and convincing reasons for reaching a different conclusion from those of his assessors. He explained why he was satisfied that the appellant assaulted the deceased as alleged and we agree with his assessement of the evidence on this. As to whether the appellant was guilty of the offence of Murder as G charged, and not of Manslaughter only, we are of the view that the proved facts showed that the offence of Murder was established. The appellant hit the deceased hard on the head several times with a stick and continued the treatment until the deceased collapsed. The appellant was teaching in the village and he must have known that his very H unnecessary alarm would in the circumstances be a clarion call to the villagers to get incited into an unrestrained attack on the poor deceased who was not resisting being taken to the Police Station. The appellant invited the dangerous violence on the deceased and he initiated that violence. We are satisfied that it was the violence which I caused the intracranial haemorrhage which resulted in the

deceased's death. The High Court decision was sound and the appeal against it is A consequently dismissed.

Appeal dismissed.

B

[zRPz]THE DIRECTOR OF PUBLIC PROSECUTIONS v NURU MOHAMED GULAMRASUL 1988 TLR 82 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Mustafa JJA, Makame JJA and Omar JJA

23rd June, 1988 C

Flynote

Evidence - Confession - To a Police officer and another civilian during search and interrogation - Whether repudiation can carry weight - Fear of torture and force. D

Evidence - Whether the two lay members erred in law by holding the evidence of D.W.3 and D.W.4 introduced an element of doubt.
-Headnote
On the basis of information received, Police went to a house in Regent Estate Dar es E Salaam where a motor lorry was parked. The lorry was in the custody of the respondent despite the fact that the lorry was in the name of respondent's father. The respondent was present while the police were conducting search in a compartment of the parked F lorry where elephant tusks were hidden. This compartment was broken open to get the tusks in presence of witnesses which included both police officers and civilians. The respondent confessed that the elephant tusks were his and that he had collected them G from Mikumi. This statement was made in the presence of four reliable witnesses. When called upon to give their opinions both lay members of the court were of the view that the respondent was not guilty as charged because the evidence given by defence witnesses did cast some doubt. Although the presiding judge dissented from that opinion H the respondent had to be acquitted. Hence this appeal by the Republic.

Held: (i) The admission made by the respondent and heard by reliable witnesses was sufficient by itself to have founded a conviction of unlawful possession of Government Trophies. I
Case Information
Appeal allowed.
1988 TLR p83
MUSTAFA JJA, MAKAME JJA AND OMAR JJA
No case referred to: A
[zJDz]Judgment
Mustafa, Makame and Omar, JJ.A.: One Nuru Mohamedi Gulamrasul and another person were charged in the High Court in Dar es Salaam sitting as an Economic Crimes Court in Economic Crimes Case No. 1 of 1986. They were both charged with being in B unlawful possession of Government trophies (to wit 133 elephant tusks) contrary to section 67 (b) of the First Schedule to the Economic and Organized Crime Control Act, and section 59 of the Economic and Organized Crime Control Act, No. 13 of 1984.
The other person with Nuru was acquitted after the Prosecution evidence had finished, C the court holding that there was no case for him to answer. The case against Nuru Gulamrasul proceeded to its conclusion. In the result, the two lay members of the Court were of the view that Nuru Gulamrasul was not guilty, but the presiding trial judge dissented from that opinion. D
From that acquittal the Republic is appealing to this Court. There was some trouble concerning service of the appeal on Nuru Mohamedi Gulamrasul, hereafter called the respondent. He apparently could not be found in the Republic of Tanzania. On application by the Republic this Court, on 12.2.88 made an order for substituted service E by publication in the newspapers on certain conditions. These conditions have now been carried out and this morning we allowed State Attorney for the Republic to open his appeal before us in the absence of the respondent as we are satisfied that substituted service has been effected in the circumstances. We believe the

position is analogous to F that which would obtain in a situation provided for in Rule 73(2) and (3) of the Court of Appeal Rules.

Briefly the facts as adduced in evidence at the trial were as follows. On information G received a police party went to a house in Regent Estate, Dar es Salaam where a motor lorry was parked. The lorry was in the custody and control of the respondent, although the lorry was in the name of the respondent's father. The respondent was present with the police party when the lorry was searched. In a well-hidden compartment built into H the body of this lorry a number of elephant tusks were discovered. The compartment had to be broken open to get at the tusks. In the presence of a number of witnesses, both Police and civil the respondent stated that the tusks were his as he had obtained or picked them up at Mikumi. That statement was made in the course of police I investigation, before the respondent was charged or arrested.

After he was arrested the respondent made a cautioned statement to P.W.6, a Police A inspector. In the statement the respondent revealed how he came to possess the tusks.

At the trial, the respondent denied that he had ever admitted that the tusks were in his possession. He called two witnesses, who alleged that they were part of a group of B people who were arrested after the discovery of the tusks in the lorry and who were present during the search. D.W.3 stated that the respondent said the tusks were not his while D.W.4 stated that the respondent said he did not know anything about the tusks. D.W.3 was respondent's fellow tribesman and D.W.4 his cousin. C

On the prosecution side, P.W.1 and P.W.2, both Police officers during the search stated that when questioned, after the tusks were discovered the respondent told them the tusks were his. P.W.3 a civilian neighbour and P.W.4 a C.C.M. Branch Secretary of the D area, both heard the respondent so saying. This , as pointed out earlier, was stated by the respondent before the respondent was charged or arrested. This was during an investigation searching for trophies. We have no doubt that these four prosecution witnesses were telling the truth, in fact their evidence stood clear and unshaken in court. E This admission by the respondent, heard by four obviously reliable witnesses, was sufficient by itself to have founded a conviction of unlawful possession, unless the respondent had authority to possess.

Then there is the cautioned statement. This was taken by P.W.6 a Police officer who F testified and produced the statement. He took all the proper precautions and took down the statement made by the respondent. It was duly signed by the respondent.

No objection was made to the admissibility of the cautioned statement, and in fact P.W.6 was not cross-examined as to the voluntariness or otherwise of the statement. G

After the Prosecution case was closed, the respondent in his evidence, purported to allege that the cautioned statement was taken from him by force or torture and was not read over to him. He repudiated it. H

We do not think a repudiation in such circumstances can carry weight. If it was alleged that P.W.6 had obtained the statement by torture, P.W.6 should have been cross-examined on that when he was testifying, or an objection raised to the admissibility of the statement. Nothing of

the sort was done. The respondent was legally represented. It seems to us that the so-called repudiation was an afterthought and would not deserve I any serious consideration.
1988 TLR p85
In his judgment the presiding judge, more in sorrow than in anger, stated that the two lay A members did not completely believe that the respondent made the "confession" during the search and interrogation. The two lay members thought that the evidence of D.W.3 and D.W.4 introduced an element of doubt. The two lay members were of the view that the cautioned statement was obtained under torture. B
With great respect to the lay members, in our view the evidence adduced by the Republic against the respondent in this case is overwhelming. The respondent's admission that he was the possessor of the tusks was satisfactorily proved; and so was C the incriminatory cautioned statement. The respondent's defence that it must have been his driver who had hidden the tusks in the lorry without his knowledge, in the circumstances, was pure fantasy. Both D.W.3 and D.W.4 were biased in his favour, being fellow-tribesman and a relative. D
Indeed we are of opinion that the finding of the two lay members that the respondent was not guilty of the offence charged was a perverse finding in the circumstances. No reasonable tribunal on a proper and objective view of the evidence could have arrived at such a conclusion. E
We allow the appeal, set aside the judgment and order of acquittal of the High Court sitting as an Economic Crimes Court, and substitute therefore a finding of guilty as charged against the respondent.
We sentence the respondent to 10 years imprisonment. We order the forfeiture of the F tusks (if not already forfeited) and of the lorry to the Republic.
Appeal allowed.
1988 TLR p85
G
[zRPz]REGINA A. KATUKWA v ZUBAIL KATUMWA 1988 TLR 85 (HC)

Court High Court of Tanzania - Bukoba
Judge Munyera J

23rd June, 1988 H
Flynote
Land Law - Inheritance - Land bought by wife - House built on it by wife - After death of I husband brothers of the deceased seeking to inherit the land - Whether proper.
1988 TLR p86
MUNYERA J
-Headnote
The appellant was the wife of respondent's deceased brother. It was in evidence that the A appellant bought the piece of land in dispute and built a house on it. After the death of her

husband the respondent sought to disrupt her long occupation of the shamba arguing that the shamba belonged to his brother.

Held: (i) On the evidence, the shamba belonged to the appellant.

Case Information

Appeal allowed.

No case referred to.

Rweyemamu for the appellant

[zJDz]Judgment

Munyera, J.: The respondent was the plaintiff in Rubale Primary Court. He sued the appellant for vacant possession of a shamba and a house in it then occupied by her. It is agreed the appellant is a widow of one Andrea Katumwa who passed away on 16/5/85. The respondent is the deceased's brother. The appellant and the deceased were married many years ago and lived together in the suit land till his death, he was intered in this same shamba. After his death his widow the appellant continued to live in there. In 1986 the respondent filed this suit. His plaint averred:

> Mnamo 1971 marehemu Kaka Andrea Katumwa alinunua shamba la shauri, 1976 akajenga mle nyumba ya matofali, mwaka 1978 aliolea mle, 16/5/85 alikufa akazikwa mle, baada ya matanga mjane wake Regina ambaye hakuzaa na marehemu amejimilikisha shamba na nyumba, naomba mahakama imtoe

To begin with it is not true that the appellant "amejimilikisha baada ya matanga." She has been living in there with her deceased husband, she did not enter the shamba after the death. It was the respondent who sought to disrupt her long occupation of the shamba. In her defence the appellant argued the shamba did not belong to her deceased husband, she bought it with her own money and built the house also through her sweat. For that reason the property was not the subject of inheritance by the deceased's clan. So the issue before the court was whether the suit shamba belongs to the deceased or to the appellant. The respondent stated the deceased had bought the shamba from one Ahmad Omari Katundu for Shs. 7000/=. He

called three witnesses who supported his case. It should be noted that he did not call the vendor Omari (DW5). In her evidence the appellant stated she bought the shamba from Omari for Shs. 8550/=. By then the deceased and herself were living elsewhere. With the help of her relative she built a house in the shamba. In 1971 she entered into occupation but her husband remained in another shamba at Izimbya and used to visit her occasionally. On his death the clan decided not to bury him in Izimbya but brought him in the suit shamba. She called the vendor Ahmad but he turned hostile. In cross-examination he replied he in fact gave the key of the house to the appellant and not to the deceased and it was the appellant who occupied the shamba and the house. The trial court by majority vote (one assessor dissenting) found the shamba belonged to the appellant and dismissed the respondent's claim. He appealed to the District Court which reversed the decidion of the trial court and gave judgment for the

respondent. The appellant appealed to this court and Mr. Rweyemamu argued the appeal for her. D

The question before the court was the ownership of the suit property as between the deceased and his widow. The key witness was Ahmad Omari from whom the property was bought. Some months before this suit was filed, probably the appellant guessed E something sinister would befall her, she went to Ahmad and told him she had lost the sale document concerning the shamba; she wanted something to protect her. Ahmad agreed to accompany her to Bukoba town and there he swore an affidavit before an advocate F (Rutakelezibwa) to the effect that on 15/5/71 he sold the shamba to the appellant for Shs. 8550/=. She produced the affidavit in the trial court as Exh. B. Ahmad repudiated the affidavit as false. The trial court was not duped, it held the affidavit a genuine document if it were not, then Ahmad should have produced his own genuine document on which the sale to the deceased was recorded. I am inclined to agree with the trial G court. The fact that the respondent did not call Ahmed to give evidence on his side suggests that he feared the witness would speak the truth as to whom he sold the shamba. It did not matter that Ahmad turned hostile to the appellant, his affidavit and his admission in court that he handed the shamba to the appellant not to the deceased H supported the appellant's case. For that reason I disagree with the decision of the District Court.

I allow the appeal, set aside the decision of the District Court and restore that of the trial court in its entirety. I

Appeal allowed.

1988 TLR p88

A

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v FIDELIS ERIO 1988 TLR 88 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Mustafa JJA, Makame JJA and Omar JJA

27th June, 1988 B

Flynote

Criminal Practice and Procedure - Sentencing - Imprisonment sentence manifestly inadequate - One statute provides for maximum but not minimum sentence - Another statute provides for a minimum sentence. C

-Headnote

The respondent, a priest, was charged with and convicted of an offence in connection with elephant tusks. He was sentenced to one day imprisonment. While the Economic and Organized Crime Control Act under which he was charged provided for a maximum D of 15 years imprisonment but not a minimum, the Wildlife Conservation Act provided for a minimum of 3 years imprisonment and a maximum of 7 years imprisonment.

Held:: (i) Section 67(2) of the Wildlife Conservation Act provides for a tariff of E sentences for the offence of unlawful possession of Government trophies according to value;

(ii) since the value of trophies in this case was over four million shillings and taking into account all the relevant factors the punishment imposed was neglible, inappropriate and manifestly inadequate. F

Case Information

Appeal allowed.

Kyaruzi, for the Appellant

Kumwembe, for the Respodent G

[zJDz]Judgment

Mustafa, Makame and Omar, JJ.A. This is an appeal by the Republic against the sentence of one day imprisonment imposed

on the respondent consequent upon his conviction for the offence of being found in H unlawful possession of government trophies to wit, 224 elephant tusks, valued at shs. 4,660,000/-. The Republic was represented by Mr. Kyaruzi, learned State Attorney, while Mr. Kumwembe learned advocate, appeared for the respondent before us as he did also in the lower court presided over by Munyera, J.

The respondent is a reverend father in the Roman Catholic Church, and at the material I time he was the padre in charge of

Mchuchu Parish at Mikindani, Mtwara District. He was charged in connection with the A elephant tusks as aforesaid, and in a unanimous judgment by the Economic Crimes Court he was found guilty.

The Republic's complaint was that the trial court took into consideration immaterial factors and left out important ones in sentencing the appellant. The second complaint B was that the sentence imposed was manifestly inadequate. Mr. Kyaruzi submitted that the trial court should have taken into account the number of tusks involved and their value, and the prevalence of the grave offence. He also pointed out that under the Wildlife Conservation Act the minimum sentence is three years and the maximum is C seven years imprisonment. Read together with the Economic and Organized Crime Control Act the maximum imprisonment for this offence is fifteen years. The position is therefore that a minimum sentence of three years is provided for under the Wildlife Conservation Act. D

Mr. Kumwembe, learned advocate, urged this Court to impose a suspended sentence. He submitted that the respondent did what he did because he was naive and he innocently thought he was acting the good samaritan to Aziz. Aziz is the person who allegedly took the tusks to the respondent's residence for safe custody, the villain who has since disappeared into thin air, leaving the respondent holding the baby, figuratively E speaking.

The trial court's 'sentence' was about as long as the rest of the judgment. We propose to make only a brief comment on it. The trial court opined that the respondent's conduct was innocent and also made reference to the "surroundings the accused has grown in till F this age of 56 (which) made his knowledge of such things as trophy laws very limited, that is why he fell an easy prey to rogue Aziz".

With respect, we do not think that Roman Catholic priests are necessarily that naive and gullible, if that was what the trial court was suggesting. We are satisfied that the G respondent is a well-educated and informed person and that, in getting mixed up with the alleged Aziz he knew what he was doing, and that he had his eyes wide open. The trial court made an oblique reference to the respondent's comparatively secluded life. The H respondent's life was not all that cloistered and we do not agree that he was all that unworldly. He was going about visiting people, meeting several people in Mikindani town and even drinking coconut liquor with some of them. To expect this Court to believe his story is to be too optimistic. Receiving elephant tusks at about 12 midnight, I and again at 3 a.m., allegedly because Aziz did not want to be seen by thieves

and taking the tusks there because there was no other safe place, do not impress us as A being innocent. It may be suggested that the nearby Police station at Mikindani was at least as safe a depository as the respondent's official residence.

The sad fact is that the respondent knowingly got mixed up with a person or persons B cannibalizing the national economy. In his position the respondent fully knew that he was straying from the ideals he was supposed to personify. He degraded and scandalized his trusted position. It was submitted that the casual stocking of the elephant tusks in a C banda showed his innocence. No, it rather illustrated his modus operandi, playing rustic innocence, knowing and exploiting the respect and awe with which the parish premises were being treated. The respondent would hopefully be familiar with the ideas enunciated by his right reverend seniors, the Roman Catholic Archbishops and Bishops D of the then Tanganyika, in their Pastoral Letter of 1960, 'The Truth that makes men free', wherein it was propounded that "One cannot be a good Catholic without being a good citizen."

Mr. Kumwembe conceded that under the Wildlife Conversation Act there was no E discretion to impose the sentence of one day imposed. As it is known section 67(2) of the said Act provides a tariff of sentences for the offence of unlawful possession of Government trophies according to value. The value of the trophies in this case was over four million shillings. Taking into account all the relevant factors, and disregarding immaterial considerations, the punishment imposed was negligible, inapropriate, and F manifestly inadequate.

In view of the foregoing, we allow the appeal by the Repubic. We set aside the sentence of one day imprisonment and impose in its place a sentence of five years imprisonment.

G Appeal allowed.

[zRPz]CB NDEGE v EO ALIYA AND AG 1988 TLR 91 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Msoffe, SDR

29th June, 1988
Flynote
Bills of costs - Party not blamed in any way by judgment - Whether liable to pay costs. B
Bills of costs - Limitation as to costs - "Reasonable" amount depending on circumstances of each case - Rule 9 of 3rd schedule Court of Appeal Rules 1979.
Bill of costs - Disbursements - Need for justification . C
-Headnote
In the court of appeal of Tanzania the appellant won his appeal against the respondents. Following the verdict, the appellant filed a bill of costs through his counsel, Mr. D Lukwaro, for a total sum of 965,237/90. A preliminary point was raised that the first respondent should not have been made a party to the present application because he was not blamed in any way in the court of appeal judgment and as such, not liable to pay costs. E
The bill consisted of a total number of 19 items. At the time of hearing the 18th item was struck off. Items 1, 3 - 11 were not in dispute and were taxed accordingly. Item 2 covered instructions costs under which a total sum of 250,000/= was presented. Items 12, 13, 14, 15, 16, 17, 19 and 20 were on disbursements. F
Held: (i) A decision as to who should or shouldn't pay costs is a matter for the court to say and not the taxing master;

(ii) if the court was of a different view in so far as costs against the first respondent, it should have specifically stated so;

(iii) the Court of Appeal judgment is clear that the appeal was allowed with costs G without any qualifications as to who shouldn't pay costs;

(iv) the law on costs of instructions to appeal is contained in rule 9 of the 3rd schedule to the Court of Appeal Rules, 1979 and the amount to be "reasonable" depending on the particular circumstances of each case; H

(v) instructions costs to appeal must be commensurate with amount of time, energy and industry involved and the sum should not be pegged to the "fund" deposited by any party;
Case Information
Bill accordingly assessed. I
1988 TLR p92
MSOFFE SDR (TAXING MASTER)
No case referred to. A
Lukwaro for the appellant
Marando for the 1st respondent
Macha for the 2nd respondent B
[zJDz]Judgment
Msoffe, S.D.R. (Taxing Master).: In the Court of Appeal of Tanzania, Civil Appeal No. 3/87 the appellant Casmir Bigacho Ndege won his appeal against both respondents i.e. Edward Oyombe Ayila and the Attorney General. Following that verdict, Mr. C Lukwaro filed the appellant's bill of costs. The bill is for a total sum of Shs. 965,237/90. Further to filing the same, Mr.

Lukwaro appeared and argued the bill before me while the 1st and 2nd respondents were represented by both Mr. Marando and Mrs. Macha respectively.

A preliminary point was raised from the very outset i.e. that the 1st respondent should D not have been made a party to the present application. Mr. Marando who raised this point, argued that Mr. Edward Oyombe Ayila should not be liable to pay costs since he is not blamed in any way in C.A.T. judgment. In support of this contention he cited, inter alia, the relevant Court's judgment at page 8 thus: E

> We have gone through the other grounds of complaint, especially those in connection with allegations of corrupt acts and in respect of the status of the 1st respondent had failed to establish or prove his allegations. F

In answer to the above submission, both Mr. Lukwaro and Mrs. Macha were of the view that the 1st respondent should pay costs; arguing among other things, that, a decision as to who should or should not pay costs is a matter for the Court of Appeal to G say and not the Taxing Master. And further that if the court was of a different view in so far as the 1st respondent is concerned, it would have specifically stated so. I agree.

Reading through the C.A.T. judgment it is clear that the appeal was allowed with costs H without any qualifications as to who shouldn't pay costs. In that regard therefore my answer to Mr. Marando's submission is simply that the 1st respondent is also liable to pay costs.

The bill consists of a total number of 19 items, the 18th item having been struck off at the I time of hearing this application. It was struck off at the request of counsel (Mr. Lukwaro).

1988 TLR p93

MSOFFE SDR (TAXING MASTER)

Item 1, 3 - 11 are not in dispute. They are accordingly taxed as presented. A

Under item 2 (instructions to appeal) a total sum of 250,000/= is claimed. In support of this claim Mr. Lukwaro contended, among other things, that much energy and time were spent in preparing for and prosecuting the appeal. He had to go through 338 pages, look B for and cite relevant authorities, and that generally the appeal was much involving in that it took two days to be heard, and that in the course of all that time both points of law and fact were raised and argued. Both Mr. Marando and Mrs. Macha were of the view tht the 250,000/= is on the high side and that awarding it would amount to C excluding the poor from litigating their rights. They did not however directly address themselves to Mr. Lukwaro's arguments on time, energy etc. spent on the appeal. This notwithstanding, the law on this aspect is as contained in Rule 9 of the Third Schedule to The Court of Appeal Rules, 1979. Going by the law and the facts before me, I would D answer Mr. Lukwaro by simply saying this:- That much as I agree that a fairly amount of time, energy, industry etc. were spent by counsel but the 250,000/= is certainly not commensurate with all that effort. To my mind the sum is on the high side. I say so fully conscious of the fact that in view of the "fund" of the respondents (especially the 2nd E respondent) that sum could easily be paid. The idea however is to allow such sum as would he reasonable in the particular circumstances and not necessarily tying oneself to the "fund" of a person. In my view a sum of 125,000/= would be reasonable and just in the circumstances. I accordingly allow 125,000/= and tax off the rest. F

Item 12, 13, 14, 15, 16, 17, 19 and 20 are DISBURSEMENTS. Where possible receipts were produced by counsel to justify the alleged expenditures. In others some of the alleged expenditures were unreceipted it being alleged that it was not always easy to G secure receipts. It is Mr. Lukwaro's general contention however that both the receipted and non-receipted expenditures were necessary since in preparing for the appeal the appellant had to travel extensively in looking for and instructing counsel and that by so doing he had to incur considerable expenses. H

On the issue of DISBURSEMENTS and with particular reference to the present application, the reasoning obtaining in Mulla's Code of Civil Procedure 13th Edition Vol I and at page 152 para 7 is to a certain extent relevant for my purposes. In the said paragraph Mulla states: I

1988 TLR p94

MSOFFE SDR (TAXING MASTER)

Everything which increases the litigation and the costs and which places on the defendant a A burden which he ought not to bear in the litigation is a perfectly good cause for depriving the plaintiff of costs. A successful party will be deprived of the costs of issues which he has unneccesarily raised. B

Admittedly the appellant had to travel in order to look for and instruct counsel, and that by so doing he had to incur expenses. However one wonders if all the trips were really necessary. And assuming they were, one wonders further if it was necessary to spend so C much time on each such trip. Indeed even some of the local expenses in the form of taxi hire charges are also questionable.

Under item 12 a total of 81,470/30 is claimed as expenditure icurred during one such trips. It is clear here that the appellant was in Dar es Salaam during this trip alone, for a D total number of 31 days! Was it necessary for him to stay for all this long period? One wonders if for all those days he was looking for counsel! I would only say that much as one may appreciate the necessity for the trip in question, the time spent for the purpose, was unnecessarily long. I will only allow the air tickets; a maximum of ten days which I E fix at 3000/= per day to include both accommodation, food expenses and local transport. Accordingly only the sum of Shs. 37,970/= is allowed for this item; and the rest is taxed off.

Item 13 is another such trip where a total sum of 30,097/50 is claimed. Presumably he had to make this other trip, again, to look for and instruct counsel if his first trip under F item 12 hadn't been a success. However, the 15 days here was again unnecessarily long. In the same way I will allow only his air tickets, and a maximum of 3000/= per day to include accommodation, food expenses, and local transport. I therefore allow only Shs. 11,985/= for this item and tax off the rest. G

Under item 14 he claims to have travelled to Dar es Salaam for the same reasons, and claims a total sum of 160,805/25. According to Mr. Lukwaro, this trip (along with those in items 12 and 13) was necessary since he was still looking for good counsel of his H choice. It may be of interst to note here that all this time Mr. Lukwaro's firm had not been engaged. Indeed it is not in dispute that they were engaged in February 1987. I will reluctantly accept Mr. Lukwaro's

submission but will allow only the air tickets and a maximum of two days which I fix at 3000/= per day to include accommodation, food I expenses and local transport. Accordingly I
1988 TLR p95
MSOFFE SDR (TAXING MASTER)
allow a total sum of Shs. 8,985/= under this item and tax off the rest. A
Item 15 is yet another trip to Dar es Salaam where a total sum of Shs. 72,898/= is claimed. To say the least this trip was not necessary. It was made at a time when Mr. Lukwaro's firm had already been engaged vide item 16. Having instructed counsel one B wonders if it was still necessary for him to travel to Dar es Salaam at this time. I will accordingly disallow this item.
Item 16 was probably necessary since this was the time that he engaged counsel. As mentioned earlier Mr. Lukwaro's firm was engaged in February 1987 and this trip was C allegedly made between 25/1/87 and 28/2/87. The trip was necessary so that he could adequately brief counsel. Against this item a total sum of Shs. 110,986/50 is claimed being an amount spent during a total stay of 33 days! This again was another unnecessarily long stay. One wonders if it takes one slightly more than a month to brief D counsel! I will allow only his air ticket and a maximum of 6 (six) days at 3000/= per day to include accommodation, food expenses, and local transport. Accordingly this item is taxed at Shs. 11,860.00 only.
Item 17 is yet another trip to Dar es Salaam (via Moshi) lasting for a total number of 31 days against which a total sum of 87,116/= is claimed. I share the view expressed by E Mr. Marando that having briefed counsel this trip was absolutely unnecessary. Indeed even Mr. Lukwaro does not justify the necessity for this particular trip in spite, of course, of his general assertion (as he did with other items) that it was necessary for him to travel and brief counsel. Even if one were to allow this item still the period taken would be F highly questionable. All in all, I disallow the whole of this item.
The trip in item 19 was necessary. This was made at a time when a date of hearing the appeal had already been set and Notices issued. According to a Notice of hearing dated G 20/6/87 the date of hearing the appeal was set for 13/7/87. It was therefore necessary for the appellant to make final consultations with counsel with the view to putting ends together. However it was not necessary for him to spend all that long period from 14/6/87 to 24/6/87. Presumably by this time counsel had gone through the record and H client's long stay was not only unnecessary but a useless bother to counsel. I will allow only the tickets and a maximum of two days at 3000/= per day to cover accommodation, food expenses and local transport. Accordingly the item is taxed at Shs. 9860/= only.
Item 20 encompasses the period during which the appeal was heard. Against this item a I total sum of Shs. 100,447/10 is claimed.
1988 TLR p96
It is certainly understandable why the appellant had to be in Dar es Salaam during the A time of hearing the appeal and possibly some few days later to do the following:

(a) Wait for date of delivery of judgment.
(b) Sort out with counsel taxation matters after the judgement B
(c) Make travel arrangements home.

However, it is still not clear to me why he arrived in Dar es Salaam as early as 29/6/87 C when the appeal was set down for hearing on 13/7/87! This early arrival was unnecessary. Even Mr. Lukwaro submitted nothing to justify this early arrival. The appellant's presence two or three days before the date of hearing could be understandable but not earlier. As such I will allow only his tickets, and a total of 21 D days (1/7/87 - 31/7/87) at Shs. 3000/= per day to include accommodation, food expenses and local transport. Accordingly the item is taxed at Shs. 66,860/- only.

In the end result the appellant's bill of costs is taxed at Shs. two hundred and eighty four thousand and eighty only (284.080/=). E

Bill accordingly assessed.

1988 TLR p96

F

[zRPz]RAMESH RAJPUT v MRS SUNANDA RAJPUT 1988 TLR 96 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Mustafa JJA, Makame JJA and Omar JJA

5 July, 1988 G

Flynote

Family Law - Custody of children - Most important factor in custody proceedings.

Evidence - Admissibility - Hearsay evidence - Party's failure to object to admissibility - Whether may raise objection on appeal - Equitable estoppel. H

Family Law - Maintenance of child - Quantum.

-Headnote

This case concerned custody of a child of two years. The husband applied to the District I Court for an order of custody of the child. The mother of the child had gone away to her parents and refused

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MUSTAFA JJA, MAKAME JJA, OMAR JJA

to return to her husband until certain conditions had been met. Before the trial court was A an affidavit by the husband, a counteraffidavit by the wife and a reply to the counteraffidavit by the husband. The affidavit by the wife was in fact sworn to by her advocate. The District Court decided in favour of the husband . On appeal, this decision was overturned by the High Court. The first appellate court also awarded maintenance in B the sum of Shs. 3000/= per month to be paid by the husband for the child. On appeal to the Court of Appeal of Tanzania counsel for the appellant husband submitted that the counter affidavit should not be looked at as it was pure heasay having been deponed by C the wife's advocate. No objection was raised by the appellant at the trial court to the admissibility of the counteraffidavit on the ground that it was hearsay. The appellant also attacked the quantum of maintenance awarded by the High Court. D

Held: (i) The most important factor in custody proceedings is the welfare of the child;

(ii) an infant child of two should be with the mother unless there are very strong reasons to the contrary;

(iii) in the circumstances of this case no strong reasons have been advanced to E rebut the presumption that an infant below the age of seven years should be with the mother;

(iv) the sum fixed as maintenance was manifestly excessive and was not supportable on any evidence;

(v) by not objecting to admissibility of the counter affidavit at the trial court the F appellant, on the basis of something in the nature of an equitable stoppel, had waived his right to object to the admissibility of hearsay evidence in this appeal.

Case Information

Appeal dismissed. G

No case referred to.

Lakha, for the Appellant

Kesaria and Marando for the Respondent H

[zJDz]Judgment

Mustafa, Makame and Omar, JJ.A.: This appeal is conerned with the custody of an infant male child. The husband, who is the appellant in this appeal, had applied by way of Chamber Summons to a District Magistrate's court in Dar es Salaam for an order of I custody of the child to be made in his favour. He succeeded in the

District Magistrate's Court, but that decision was overturned in the High Court on an A appeal by the wife, who then obtained an order of custody in her favour. The appellant is appealing from the decision of the High Court.

Before us Mr. Lakha appeared for the appellant husband and Mr. Kesaria, with Mr. B Marando, appeared for the respondent wife.

We will begin with the short facts of the case. It would seem that the parties who reside in Dar es Salaam, were married in 1980. There are two children of the marriage, one is now about 6 years old and the other being Keval, the subject of this appeal, is two years C old. The wife had had occasion to stay away for 2 years from the husband, from June 1982 to May, 1984, before the birth of Keval. The wife was supposed to have gone to her father in Tanga for a week or so, but stayed nearly 2 years. The wife had left her child with the husband during all that period.

The wife again left Dar es Salaam on 1.5.88 for Tanga, with the child Keval, with the D permission of the husband, for a stay with her father for a short period, a month or so! The wife has refused to return with the child Keval to the matrimonial home in Dar es Salaam, until certain conditions were met, namely, that the husband should obtain E accommodation on his own, and not live with his parents and his parents' family. As a result the husband applied for custody of the child Keval.

At the Magistrate's Court the application of the husband was supported by an affidavit sworn to by the husband alleging acts of commission or omission on the part of the wife F to indicate

that she was not a proper or fit person to have custody of the child Keval. The wife filed a counter-affidavit. However the counter-affidavit surprisingly enough, was not sworn to by the wife, but by Mr. Marando, who was acting for her in the cause as G her advocate. The counter-affidavit contained allegations of ill-treatment of her by the husband, her mother-in-law and sisters-in-law. To the counter-affidavit the husband filed an affidavit in reply. At the hearing of the application the husband also testified, and called one witness Chohan. The wife did not testify.

Before us Mr. Lakha submitted that the counter-affidavit should not be looked at, as it H was pure hearsay. In that event the only evidence available to the court was that deponed to by the husband by way of his affidavits and the testimony given by him and his witness. However no objection was raised by the appellant at the trial court to the I admissibility of the counter-affidavit on the ground that it was hearsay or on any other ground. If such objection

had been raised, we have no doubt a proper counter-affidavit would have been A provided, after an adjournment, perhaps on terms, which could hardly have been refused. In the result the court, the parties and their advocates conducted, argued and decided the matter on the allegations deponed to in the affidavits and counter-affidavit. B Similarly on first appeal, the High Court decided the appeal on the basis that the matters deponed to in the counter-affidavit were validly before the court. Both the courts below had acted on that basis. The wife had certainly good ground for believing, and was so led by the way the appellant conducted the case to believe, that the counter-affidavit was in order and had been accepted as such and she had conducted her case on that basis. C

The proper forum for raising the issue of hearsay was at the Magistrate's Court. In view of the course the matter has taken, we do not think at this stage we can allow this issue to be raised. The appellant would on the basis of something in the nature of an equitable D estoppel be barred from doing so. It is a civil matter, and the appellant had waived his right to object to the admissibility of hearsay evidence in this appeal.

The wife on 28/4/86 was physically assaulted by the husband. The wife apparently left the house after the assault. The husband and wife were reconciled by the members of E their Hindu Community and the wife was then "allowed to enter the petitioner's (husband) house," according to the evidence of the husband's witness Chohan. On 1.5.88 the wife left the matrimonial home and went to her father in Tanga with the child Keval and has refused to return unless the husband lived separately from his parents and family. F

The wife had alleged that she was not able to suffer any longer the indignity and cruelty meted on her by the husband's mother and sisters.

Since the trial court and the High Court had differed in their conclusions on the evidence G adduced by the parties, we will have a look at the facts ourselves.

Mr. Lakha at the outset of the appeal conceded that in terms of the Law of Marriage Act in Tanzania there is a rebuttable presumption that an infant below the age of seven H should be

with the mother. It is also common ground that the most important factor in custody proceedings is the welfare of the child.

Mr. Lakha sought to rebut the presumption in favour of the mother on certain grounds. He submitted, inter alia, I

(1) That the elder child is still with the husband and in his

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MUSTAFA JJA, MAKAME JJA, OMAR JJA

custody, and that indicates that he is a proper person to look after infant children. He A wants both the children under his custody to keep them together, and not to have them separated.

(2) That the wife had been cruel to the infant Keval and that the husband has B so alleged. He referred to a paragraph in the husband's affidavit reading "On 28.4.86 Keval was crying from 8.30 to 9.00 am and despite my instructions she did not pull the cradle and instead she absconded from the matrimonial home without the child" C

(3) The wife is illiterate and therefore incapable or unsuitable as a mother as she committed an error, due to her illiteracy, in giving the age of Keval to a doctor.

(4) The wife had, from June, 1982 to May, 1984 abandoned the elder child D who was looked after by the husband's mother during that period.

(5) The accommodation in the wife's father's house in Tanga is insufficient E and worse than that provided by the husband's parents' house.

We will deal with the allegation of cruelty against the child Keval made by the husband. Even if we accept as true the allegation made by the husband about what has happened F on 28.4.86, we are not persuaded that that incident established cruelty on the part of the wife. From the evidence supplied by the affidavits, counter-affidavit and testimony given, it seemed that on 28.4.86 the husband assaulted the wife who left the house and G was later "allowed to enter the petitioner's (husband') house" after they were reconciled by members of their community. It would seem that there must have been some quarrel between the spouses before, that the wife had left the baby crying in the cradle without moving it to and fro. If that was "cruelty", which is open to doubt, we think the husband H was equally "cruel". He could have himself moved the cradle to lull the child, instead of merely instructing the wife to do so. If leaving the child in a cradle to cry for half and hour was cruelty, then we think both were "cruel". That allegation, however, did not in our view establish that the wife was cruel to the child Keval on 28.4.86. I

1988 TLR p101

MUSTAFA JJA, MAKAME JJA, OMAR JJA

It would have been ideal to keep the two children together if possible, but that factor has A no great or particular significance in dealing with the custody of Keval. We do not think that literacy or illiteracy is a proper criterion for assessing the sustability of a woman as a mother. There was no evidence as to the relative space of the Dar es Salaam or Tanga accommodation, and that need not concern us. We do not think that B the wife, in view of her allegations as to the living conditions she had had to endure at the husband's parents' house, was wrong to have insisted that she could not stay with the husband in the latter's parents' home. C

We do not think that the grounds relied on by Mr. Lakha could rebut the presumption in the wife's favour. We think that the wife should have custody of the child Keval in the circumstance of this case. An infant child of two should be with the mother, unless there are very strong reasons to the contrary. No such reasons exist here.

The High Court, on first appeal, made an order for maintenance of the child Keval in the D sum of Shs.3,000/= per month to be paid by the husband. Both Mr. Lakha and Mr. Kesaria agree that, if the custody of Keval was given to the wife, an order for maintenance was in order. However Mr. Lakha submitted that the sum fixed was manifestly excessive, and was not supportable on any evidence. There was no E investigation as to means before the order was made. There was some evidence by the husband that his monthly net income was shs. 3,200/=. Both counsel accept that was correct. On that basis we think that the sum should be shs. 1,200/= per month and we accordingly set aside the sum of shs. 3,000/= per month made by the High Court and F substitute therefore a sum of shs. 1,200/ per month.

Apart therefore from reducing the order of maintenance from shs. 3,000/= to shs. 1,200/= per month the appeal is dismissed with costs. G

Appeal dismissed.

1988 TLR p102

A

[zRPz]MATERU LEISON & J FOYA v R SOSPETER 1988 TLR 102 (HC)

Court High Court of Tanzania - Mwanza

Judge Moshi J

12 Julay, 1988 B

Flynote

Contract - Of carriage - Passenger's failure to prove she boarded the bus she claims to have boarded - Whether there was a contract of carriage.

Evidence - Assessment of - Whether appellate court may depart from trial court's assessment. C

-Headnote

The appellants are appealing against a decision which had awarded the respondent 8,000/= as general damages with costs on the ground that the appellants had breached a D contract of carriage with the respondent. The appellants argued that the trial magistrate had erred in holding that the respondent had boarded the appellant bus. As such, he had erred in holding that a contract of carriage existed between the two parties.

Held: (i) There is no evidence to support the magistrate's conclusion; E

(ii) appellate courts may in rare circumstances interfere with trial court findings of facts. It may do so in instances where trial court had omitted to consider or had misconstrued some material evidence, or had acted on a wrong principle or had erred in its approach to evaluating evidence; F

(iii) the trial court magistrate had erred in his approach to evaluating the evidence by allowing speculative views to affect his decision.

Case Information

Appeal allowed. G

No case referred to.

Rugarabamu, for both appellants H

[zJDz]Judgment

Moshi, J.: This is an appeal against the decision of the Mwanza Court of Resident Magistrate which adjudged to the respondent shs. 8,000/= general damages with costs, consequent upon the appellants' breach of a contract of carriage with the respondent. I

Mr. Rugarabamu, learned advocate, argued the appeal for both

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MOSHI J

appellants, Materu Leison (DW1) and John Foya (DW2), whereas the respondent, A Mrs. Bajilo Sospeter (PW1) addressed the court in person.

It was the respondent's case that on 8/10/84 at 11.00 a.m. she boarded a Majira Bus Service bus at Mwanza bus stand intending to travel to Ukiriguru. The bus operates B between Mwanza/Malya route, and her husband (PW2), who escorted her to the bus stand, paid to the first appellant, the conductor, a fare of shs. 20/=, and got a receipt. The owner of the bus, according to her, was the second appellant.

Upon the arrival of the bus at Ukiriguru, the first appellant refused to stop it, and it C proceeded to a spot about ten miles from Mapilinga, where it stopped, and the respondent forced to disembark. A passenger (PW3) in the bus allegedly saw all this. The respondent had a bag which contained her clothes and other items allegedly worth shs. 7,000/=, and as she was walking back to her destination, she was allegedly D attacked by unknown persons, who took away her bag. She reported the incident at Mwanza Police Station, and subsequently filed the suit claiming general damages of unspecified sum, special damages of shs. 7,000/= and costs. E

For their part, the appellants denied any knowledge of the respondent as a passenger in their bus. Their buses, which are two, operate in the business name of Sinai Enterprises Ltd., and not Majira Bus Service. Sinai Enterprises Ltd buses operate along Mwanza/Nzega and Mwanza/Geita routes, and not Mwanza/Mallya, and they leave F Mwanza between 7.30 a.m. and 8.30 a.m. as shown in their time table (Ext. D2) and never at 11.00 a.m. They issue to passengers tickets (Ext. D1) bearing the letter head "Sinai Enterprises Ltd." The claim for special damages was rejected by the trial court and, in my view, rightly so. But the one for general damages and costs was granted, and both appellants, on being aggrieved, have now come to this court. G

Mr. Rugarabamu's main ground of complaint at the trial and before me, is that the learned trial resident magistrate erred in holding that the respondent boarded the appellants' bus which, as established in evidence, is Sinai Enterprises Ltd. With respect, H I entirely agree with him. Before the trial court, the respondent and her two witnesses were positive that she had boarded a Majira Bus Service bus, got a ticket, and left Mwanza at 11.00 a.m. But it would appear from the appellants' evidence, supported as it was by their bus time-table (Ext.D2) and their type of

tickets (Ext.D1), that their I buses' operative business name is Sinai Enterprises Ltd, and not Majira Bus Service,

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MOSHI J

and that their buses do not leave Mwanza later than 8.30 a.m. In dealing with this point A the learned resident magistrate had the following to say at page 4 in his judgment:

The fact that the defendants claimed that they operated their buses under the name of Sinai B Enterprises Ltd; that only, does not mean that there was no possibility for Majira Bus Service to have been changed to Sinai Enterprises Ltd.

With respect, this passage contains unsupported speculation and conjecture, and it C would seem that the trial magistrate had allowed such speculative views to affect his finding that there was a contract of carriage between the appellants and the respondent. There was no evidence whatsoever suggestive of, let alone in support of the magistrate's conjecture that Sinai Enterprises Ltd could have been the successor of Majira Bus D Sevice. There was evidence that these two bus firms are not one and same thing. They are different firms as their business names clearly shows. The ticket allegedly issued to the respondent was not produced or shown in court during the trial. There was no hint by the respondent that it was the same as that for Sinai Enterprises Ltd (Ext. D1) E Produced by the appellants. Be that as it may, since there was clear and positive evidence that the bus boarded was that of Majira bus service, chances are glaring that the ticket was that of Majira bus service, and not Sinai Enterprises Ltd. This is a first appeal, and this court has power to re-appraise the evidence and draw inferences of F fact. I am keenly aware that it is only in rare circumstances that an appellate court would interfere with the trial court's findings of fact, and it would interfere, for instance, where the trial court had ommitted to consider or had misconstrued some material evidence, or had acted on a wrong principle, or had erred in its approach in evaluation of the G evidence. I am satisfied that the trial court erred in its approach in evaluating the evidence by allowing speculative views to affect his decision. Had the learned resident magistrate evaluated the totality of the evidence before him with judicial objectivity, he H would most certainly not have come to the conclusion that a contract of carriage had been established between the appellants and the respondent.

For these reasons, I allow the appeal, and set aside the judgment of the court below and the orders made thereunder.

In the circumstances, there shall be no order for costs. I

Appeal allowed.

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[zRPz]MANAGEMENT OF HOTEL AFRICANA v JUMUIYA YA WAFANYAKAZI TANZANIA (JUWATA) 1988 TLR 105 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Makame JJA, Kisanga JJA and Omar JJA

13 July, 1988 B

Flynote

Labour Law - Permanent Labour Tribunal - Jurisdiction - Trade dispute referred to it under wrong provision of the law - Whether dispute properly before Tribunal - Jurisdiction of Tribunal. C

-Headnote

An alleged trade dispute between Hotel Africana and Juwata was referred to the Permanent Labour Tribunal by the Minister purporting to act under section 9A (1) of the Permanent Labour Tribunal Act, 1967 as amended by Act No. 18 of 1977. The Tribunal admitted that the reference was made to it by the Minister under the wrong D provision of the law. It nevertheless decided that it had jurisdiction to inquire into the dispute. The management of Hotel Africana appealed to the High Court challenging the purported jurisdiction of the Tribunal. The appellate court observed that the dispute was referred to the Tribunal by the Minister under the wrong provision of the law, i.e., E section 9A (1) of the Permanent Labour Tribunal Act. The High Court judge, nevertheless, decided that the Tribunal had jurisdiction to inquire into the dispute because he said the reference was made under section 4(4) of the Permanent Labour Tribunal Act. On appeal against the decision of the High Court the Court of appeal F considered whether or not the Tribunal had jurisdiction.

Held: (i) The Minister was wrongly advised to refer the dispute to the Tribunal under section 9A(1) and that he was not legally competent to do so; G

(ii) no reference to the Tribunal was made by the Minister under section 4(4) either, because the necessary pre-requisites under it were not complied with;

(iii) what was taken to the Tribunal was as it were, a nothing and the Tribunal H had no jurisdiction to enquire into what was not there. The King v Postmaster General ex parte Carmichael [1928] K.B. 291 followed.

Case Information

Appeal allowed. I

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MAKAME JJA, KISANGA JJA AND OMAR JJA

Cases referred to. A

1. Anisminic Ltd. v Foreign Compensation Commission and Another [1969] 2 WLR 163.

2. The King v Postmaster General Ex parte Carmichael [1928] 1KB 291.

Fimbo for the Appellant B

Kisusi for the Reppondent

[zJDz]Judgment

Makame, Kisanga and Omar, JJ.A.: There was an alleged trade dispute between the C two parties in this appeal: the Management of Hotel Africana on the one hand, and Jumuiya ya Wafanyakazi wa Tanzania on behalf of some 225 employees of that hotel on the other. The alleged dispute was taken to the Permanent Labour Tribunal for inquiry D and at the hearing

there the Management of Hotel Africana was represented by Mr. Lakha, learned advocate, whereas Jumuiya ya Wafanyakazi wa Tanzania was represented by Mr. Kazoka. So as to facilitate easy reference we shall hereinafter refer to the respective parties simply as Hotel Africana and Juwata.

Mr. Lakha at the Tribunal took three preliminary issues, urging that the matter should not E be heard there. One of the issues Mr. Lakha raised, and which was one relevant in this present appeal, was that the dispute was not properly before the Tribunal because a wrong provision of the law was used, as a result of which the matter had not been validly referred to the Tribunal: the Tribunal was therefore without jurisdiction.

At the end of the day, after considering the rival arguments, the Tribunal reached the F conclusion that it did have jurisdiction.

Dissatisfied with that decision, Hotel Africana sought, and was granted, leave to apply for orders of certiorari and mandamus to remove into the High Court, and quash, the G aforesaid decision of the Permanent Labour Tribunal. Again Hotel Africana was advocated by Mr. Lakha, and this time Juwata was represented by Mr. Ismail, learned counsel. The substantive application was heard by Msumi, J. who decided against Hotel Africana. The learned High Court judge was satisfied, for reasons he gave and which we H were urged to reconsider, that "the procedure adopted in referring the dispute to the Tribunal is legally sustainable.... it is quite evident that this Application cannot be sustained". Hotel Africana's application for the orders of certiorari and mandamus was accordingly dismissed, with costs. I

Hotel Africana is now before us represented by Professor

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MAKAME JJA, KISANGA JJA AND OMAR JJA

Fimbo, learned advocate. They are appealing against the High Court decision by Msumi, A J. and have filed six grounds of appeal. In the event, only two grounds, Grounds 5 and 6, were argued: the first four grounds were abandoned and not pursued. As before the High Court, the respondents were represented by Mr. Kisusi. He is resisting the appeal. B

Let us first clear the desks: What is the position in the matter so far; and exactly what is the appeal before this Court about? The position is that the intended inquiry by the Permanent Labour Tribunal has not yet taken off. Hotel Africana have twice unsuccessfully challenged the Tribunal's power to conduct the inquiry, and they are now C urging this Court to find that the two fora below erred in saying that the dispute was properly and validly before the Tribunal and so it had jurisdiction to inquire into it.

As Msumi, J. has correctly remarked, there are several ways of referring matters to the Permanent Labour Tribunal. We wish to add that the different modes cater for different D situations and are not necessarily designed to achieve identical goals. They have different destinations, as Prof. Fimbo observed.

For our purpose we need only confine ourselves to sections 4 and 9 of the Permanent E Labour Tribunal Act because the decisions below really hinged on these two sections.

On 13th July, 1987, the Labour Commissioner wrote a letter to the Minister for Labour, copied to Juwata, Hotel Africana and the Association of Tanzanian Employers, briefing him on what he reckoned was a trade dispute between Hotel Africana and Juwata. The F letter went on:

Baada ya mazungumzo hayo haukutokea muafaka wowote kati ya pande hizi mbili. Kwa hali hiyo, kwa misingi ya kifungu cha 9A cha Sheria ya Mahakama ya Kazi ninahisi kuwa huu ni H mgogoro wa kikazi unaofaa uchunguzwe na hatimae nawe utoe uamuzi wa mwisho. Hivyo nawasilisha taarifa hii kwako ili ukiridhika uiagize Mahakama ya Kazi ifanye uchunguzi kwa kadri utakavyoona inafaa.

The Minister for Labour responded on the morrow by writing to the Chairman of the Permanent Labour Tribunal, copy to Hotel Africana, Juwata and others. (but not to the Labour Commissioner). In that letter the Minister made reference to the letter from the Labour Commissioner and said, inter alia: I

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MAKAME JJA, KISANGA JJA AND OMAR JJA

Kwa mujibu wa kifungu cha 9A(1) cha Sheria ya Mahakama ya Kazi 1967 ninatoa idhini kwa A Mahakama ichunguze:

(a) Kama utawala wa hoteli Africana ulikuwa umewaachisha wafanyakazi kwa kufuata taratibu na kwa sababu za misingi za kisheria.

(b)... B

(c) ...

Mr. Lakha's submision to the Tribunal was that Section 9A(1) did not empower the Minister himself to refer a trade dispute to the Tribunal. We think it is pertinent to C reproduce that section at this juncture:

Section 9A(1), introduced in 1977 by section 4 of Act No. 13 of 1977 provides:

Subject to subsection (2) where any trade dispute exists or is apprehended, the Labour D Commissioner may inquire into the causes and circumstances of the trade dispute and, with the approval of the Minister, refer any matters appearing to him to be connected with or relevant to that trade dispute to the Tribunal and the Tribunal shall inquire into the matters E referred to it and report on them to the Minister.

When the Tribunal submits its report to the Minister the latter "shall make a decision in relation to the matters contained in the report and submit to the Tribunal the said decision F and the Tribunal shall register the same as an award."

Now, what did the Tribunal say about Mr. Lakha's submission was: G

nzito na murua kabisa kisheria. Mahakama moja kwa moja imetosheka kwamba uwezo wa Waziri wa Kazi ni wa kumwezesha kutoa idhini (approval) kwa Kamishna wa Kazi. Kwa kuwa Waziri alitoa maagizo kwa Mahakama kuchunguza mgogoro Wakili Lakha ametoa hoja H kubwa kwamba basi hakuna mgogoro mbele ya Mahakama ambao unaweza kushughulikia,. Mahakama imetazama hoja hizi na kwa unyenyekevu kabisa, ni lazima Mahakama itie hoja zote maanani.

Having said the foregoing, the Tribunal went on to ask itself whether the action of the I Minister was prejudicial. The Tribunal

was satisfied that the error was merely procedural - what the Minister did was to A approve: it was, however, the Labour Commissioner who forwarded the file to the Tribunal.
The Tribunal, however, went on to warn: "Utaratibu huo sasa ukome, sheria ifuatwe." One may be tempted to interject here and ask, what if the practice is not stopped? B
We felt it would help to appreciate the issue better if we explained the stand the Tribunal took over the matter, as indicated above. It is against that background that Msumi, J.'s decision would be fully understood.
Msumi, J. was loud and clear regarding the Minister's action. In the learned judge's view C "The wording of this subsection is too clear to require interpolation. To constitute a valid reference before the Tribunal, the matter must be referred by the Labour Commissioner and not the Minister. The role of the Minister is to give fiat that the matter should be referred to the Tribunal." Msumi, J. went on: D

In this letter, which is addressed to the Chairman of the Tribunal, the Minister is, in no uncertain terms, referring the matter to the Tribunal for determination. This fact cannot be E clouded by the eleventh hour attempt by the Labour Commissioner to swear an affidavit that he was the one who referred the matter to the Tribunal ... And unless the Tribunal is properly seized with the matter in dispute it cannot exercise jurisdiction. In this case, so long as the F matter was referred by the Minister who purportedly acted under the provision of section 9A(1) of the Act there was nothing before the Tribunal for determination.
Having made these observations, however, the learned High Court judge went on to G consider whether the Minister in fact referred the matter to the Tribunal under section 9A(1) of the Act.
His answer to this question was in the negative. He found, by some process of reasoning, that the Minister in fact acted under section 4(4)(a) of the Act. We say 'by H some process of reasoning' by design, because as it is clear, the Minister himself said, and in so many words, that he was acting "Kwa mujibu wa Kifungu 9A(1)...". The finding by Msumi, J. therefore implies taking away the specific words of the Minister and putting in the Minister's mouth, as it were, section 4(4)(a). The said subsection goes thus: I

Notwithstanding the provisions of subsection (2) and subject to the provisions of section 36, A where a trade dispute has been reported to the Labour Commissioner in accordance with subsection (1) and both the parties to the dispute apply in writing for the dispute to be referred B to the Tribunal for settlement, or where the Labour Commissioner, after consultation with parties to the dispute, is of the opinion that the dispute should be referred to the Tribunal for settlement without any conciliatory measures being first taken in respect thereof, he shall C report the dispute to the Minister, and the Minister shall within twenty-one days from the date when the dispute was reported to him either:

(a)refer the dispute to the Tribunal for settlement, or

(b)refer the dispute back to the Labour Commissioner with a direction to proceed in D accordance with subsection (2); provided, etc.

As aforesaid, Msumi, J. found that the Minister referred the matter under section E 4(4)(a). He also found propriety in the Minister's action. The effect of this was, as it were, to save the day for Juwata, to say that the dispute was properly before the Tribunal, which therefore had the power to hear the matter. In the result Hotel Africana's application for the orders of certiorari and mandamus was dismissed, hence this appeal before us. F

As it can be seen therefore the Tribunal took the view in essence, that the reference was under section 9A(1) but that no harm was done - it was only a procedural error, so the Tribunal was empowered to entertain the matter; whereas the High Court found that the G Tribunal could not handle the dispute if the reference by the Minister was under section 9A(1), but that in this case the Tribunal had jurisdiction, albeit on a different score, that is, the reference was not under 9A(1) but rather under section 4(4)a.

Prof. Fimbo has invited us to go along with Msumi, J. to the extent of holding that a H reference under section 9A(1) can only be done by the Labour Commissioner and that if it was done by the Minister himself then the purported reference was invalid, with the consequence that the Tribunal was not clothed with the necessary jurisdiction. Learned advocate for Hotel Africana has further urged us to say that Msumi, J. erred in moving I from the correct proposition above and asserting that the Minister was acting under section

4(4)(a). He also submitted that in any event it was an error to hold in the circumstances A that the provisions of the said section 4(4)(a) were applicable. Prof. Fimbo also invited us to say that there was no evidence from which the High Court could properly hold that there was a report by the workers, in writing, to the Labour Commissioner. The significance of this last complaint by Prof. Fimbo is that the requirement of a report B in writing is one of the pre-requisites for activating section 4(4).

In his address to us Mr. Kisusi learned advocate for Juwata sought to support the High Court finding that the reference was indeed by the Minister but it was under section 4 C and not under section 9A(1). In answer to Prof. Fimbo's complaint that under section 4(4) there must be a report to the Labour Commissioner, and in writing, and that there was no evidence that such a report was made, Mr. Kisusi conceded that such written report is required but he submitted that such a report was not mandatory. The notice in D writing was to be by the Secretary General of Juwata but, according to Mr. Kisusi, the requirement merely enables the Secretary General to make the report in writing: The word may does not connote the imposition of a duty to make the written report so the absence of such a report cannot be of any consequence. Mr. Kisusi further submitted E that if it is held that a written notice was necessary Hotel Africana has not proved that such a notice was not there or that if it was there, that it was not in writing. Mr. Kisusi also argued that in the event that it is held that under section 4(4) the Labour Commissioner must expressly indicate his opinion such failure was not fatal. For good F measure Mr. Kisusi further argued that, in any event, the Permanent Labour Tribunal Act is

silent as to the consequences of such failures as Prof. Fimbo has pointed out, which according to Mr. Kisusi were merely procedural, so the failures are 'harmless' and have not occasioned 'substantial prejudice'. G

We were treated to formidable lists of authorities, for which we are grateful to both learned counsel. Some of the authorities made very elementary points or enunciated very obvious principles. We do not propose to detain ourselves with some of these. H

We propose to take another look at section 4(4) and examine the learned argument spent on it. Msumi, J.'s view was, as aforesaid, that the Minister acted in accordance with section 4(4), and now see how he gauges the Minister's action within the said sub-section. Regarding the requirement of a written notice to the Labour Commissioner, I the learned judge appreciated that "admittedly there

is no evidence to show how the Labour Commissioner received the information and A from whom" but he went on to assert that it is more likely than not that it was the employees through Juwata who made the report. Assuming that that was correct there was another hurdle the learned judge had to jump and it is this: the report had to be in B writing. This is how the learned judge managed the task. he said "And since the report was made by Juwata, the same must have been in writing." We wish to confess that we find this reasoning rather acrobatic. Quite obviously Juwata makes various reports to various people and not all such reports are in writing. Why must this one, if there was C one, have been in writing? It was required to be in writing but that is long way from saying it must have been in writing. A further probe into section 4(4) is necessary. It is another pre-requisite that both parties to such dispute apply in writing for the dispute to be referred to the Tribunal for settlement unless, on his own, the Labour Commissioner, D after consultation with the parties to the dispute, is of the opinion that the matter should be referred to the Tribunal for settlement without conciliatory measure being taken. In that case he shall report the dispute to the Minister who may do one of the two things - under section 4(4)(a) he may refer the dispute to the Tribunal for settlement, E which is what Msumi, J. says the Minister did, and which view is supported by Mr. Kisusi.

We are not satisfied that the various pre-requisites under section 4(4) were complied with. We think they have to be complied with and that they are there for some purpose. For example, the parties may not wish to go to the Permanent Labour Tribunal for F settlement. They may for example prefer to have a Labour Officer to try and effect a conciliation under section 4(2), and they, or one of them, can effectively bar recourse to the Permanent Labour Tribunal under section 4(4). Under section 4(2) incidentally the G Labour Commissioner may (with the prior approval of the Minister) tell the parties to go back to the table for negotiation and settlement. Yet another example: it may be more advantageous from a party's point of view to have his dispute proceeded with under section 9A(1), where the Tribunal would only inquire and report back to the Minister H who would make a decision to be registered as an award with the Tribunal. These different avenues are neither empty husks nor sheer formalities. They are

variously designed to effect the settlement of a dispute and each avenue leads to its own destination and consequences.

With great respect, we are not satisfied that the various necessary pre-conditions were I satisfied under section 4(4). And for

reasons we have attempted to show, we are of the view that those pre-conditions are A indeed necessary pre-requisites and not useless procedure. Failure to fulfil them is fatal to the process. In the event the Tribunal would have no jurisdiction to inquire into the dispute and such exercise by it would have been a nullity - See Anisminic Ltd. v Foreign Compensation Commission and Another [1969]2 WLR 163. B

Our ultimate decision does not depend on only what we have just said. We still have to answer the question as to whether the Minister's action was under section 4(4) or under section 9A(1). Of course, as indicated, the parties hold opposite views. Juwata's stand C is that it was under section 4(4) which view we are unable to sustain.

We have to turn to the other suggested alternative - that is that the Minister acted under section 9A(1). It is clear to us that for the reference to be valid it must be by the Labour Commissioner with the approval of the Minister. When the Tribunal has inquired into the D matter it reports back to the Minister who then makes a decision, unlike under section 4(4) where the reference is for a settlement by the Tribunal which then itself makes an award. In his letter to the Minister the Labour Commissioner clearly advised the Minister "uiagize Mahakama ya Kazi ifanye uchunguzi kwa kadri utakavyoona inafaa" so E that the Minister may ultimately decide. The Permanent Labour Tribunal found the reference by the Minister improper, whatever the Tribunal preferred to call the action, only that it did not cause prejudice. Msumi, J. found it clearly wrong for the Minister to purport to act under section 9A(1), only that he found that the Minister acted under a F different section, section 4(4). Before Msumi, J., Mr. Kisusi had argued that the reference was made by the Labour Commissioner or that if it was by the Minister, then the Minister was acting as a delegate of the Labour Commissioner. We think the latter limb of this submission was scraping the barrel of arguments and that it is clearly G untenable. The Labour Commissioner was not empowered to delegate, he did not say he was delegating, and it would have been quite awkward and suprising if he said he was. How the letter of the Minister reached the Tribunal and whether or not the whole Ministerial/Departmental File was in fact physically taken to the offices of the Tribunal, is H neither here nor there, really. What is important, and clear to us, is that the matter was bungled and we are not in a position to say, like the Tribunal in effect did, it is wrong and don't repeat it next time, in the meantime we shall close our eyes to the impropriety and I hear your problem. We do not think it is a mere procedural error, arid of consequences. The

Tribunal has power, it is vested with jurisdiction, only when a dispute is properly before A it. If, before, it handled matters not properly taken to its door and no one raised a voice, we can only say that now that some one has challenged the practice it is proper that the matter be

considered and adjudicated upon. We are of the considered view that B the Minister was wrongly advised to refer the dispute to the Tribunal under section 9A(1) and that he was not legally competent to do so. What was therefore taken to the Tribunal was, as it were, a nothing and the Tribunal had no jurisdiction to enquire into what was not there. It is not a question of mere procedure, it is not a question of C 'substantial prejudice' to use Mr. Kisusi's expression; it is a question of want of jurisdiction. The document must be by a person designated to issue it. This was one of the points made in The King v Postmaster General ex parte Carmichael [1928] 1KB 291.

Because of the foregoing we are satisfied that the Permanent Labour Tribunal erred in D assuming jurisdiction and that the High Court ought to have granted the orders prayed for. We therefore allow this appeal with costs, and accordingly quash the finding by the Permanent Labour Tribunal that it had jurisdiction to hear what was purportedly referred to it. There was no dispute properly before it neither under section 4(4) nor under section 9A(1). E

Appeal allowed.

1988 TLR p114

F

[zRPz]REPUBLIC v ATHUMANI ALLY MAUMBA 1988 TLR 114 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Mzavas JK

13 July, 1988 G

Flynote

Criminal Practice and Procedure - Bail - Refused on ground of appellant's safety - Section 148(5)(f) Criminal Procedure Act examined. H

-Headnote

The appellant was refused bail by the District Court because it believed appellant's safety would be better protected if he remained in custody. The appellant had violated some children and police argued that the appellant could be assaulted by parents of the I victim children.

1988 TLR p115

MZAVAS JK

Held: Before the provisions of section 148 (5) (f) of the Criminal Procedure Act are A invoked to the detriment of an accused person the prosecution must clearly show that accused's safety is in danger and such information must be verified as to its authenticity.

Case Information

Appeal upheld. B

Case referred to.

1. Panju v R. [1973] E.A. 282.

Lakha, for the appellant C

Shahidi, for the Respondent

[zJDz]Judgment

Mnzavas, J.K.: This is an appeal against the decision of the lower court on 28/5/88 in which the appellant, Athuman Ali Maumba, was refused bail. D

Mr. Lakha, learned Counsel for the appellant argued that the lower court erred in law in refusing bail on the ground that it believed appellant's safety would be better protected if he remains in custody. It was argued that the learned principal resident magistrate invoked the provisions of section 148(5) (f) of the Criminal Procedure Act because the E police argued that there was a danger of the appellant being assaulted by parents of the children he is alleged to have violated.

It was argued that the test to be used before the provisions of section 148(5)(f) are F applied should be the gravity of the danger an accused is liable to face if released on bail. It was Mr. Lakha's submission that mere apprehension or fear that an accused would be assaulted if released on bail will not do.

Secondly it was submitted that the Learned Magistrate failed to appreciate that the provisions of section 148(5)(f) require a very serious proof before bail is refused. The G learned magistrate was said to have been swayed by emotions in refusing bail.

Mr. Shahidi, learned Senior State Attoney, in rebuttal supported the lower court's ruling and argued that the court was, under the circumstances of the case right in refusing bail. H It was the learned counsel's submission that section 148(5) (f) of the C.P.A. says that if it appears (and not if it is necessary) to the court ... that the accused person be kept in custody for his own protection or safety.

It was further submitted that it cannot be disputed that the charges against the accused I are serious and outrageous and that the

lower court was therefore right in ordering that the appellant be kept in custody. A

The court was told that the Police are most qualified to know the security of an accused person and that in this case they should be believed when they say that appellant's safety would be in danger if released out on bail. B

It was further submitted that there was a possibility that the accused could contact the alleged victims with a view to destroy evidence and that the heavy penalty the accused stands to suffer if convicted could prompt him to jump bail. C

On 27/5/88 when the learned Counsel for the appellant applied for bail the prosecution opposed the application arguing that the Republic was "very much concerned with accused's security".

The prosecutor told the lower court and I quote: "There is information reaching the Regional Crimes Officer that the parents are trying to find whatever means to get at the D accused .... It is our prayer that the Court uses its discretion u/s 148 (5)(f) to protect the accused". The prosecutor also said inter alia:

> This prayer I make specially so as investigations have yet to be completed. E

From the above submission by the prosecutor in the lower court it was asked to refuse bail under section 148(5)(f) of the Criminal Pr. Act on the ground that accused's life F could be in danger

as parents of the alleged victims were said to be looking for the accused possibly with intention to harm him. Another reason was that the accused should not be released on bail as investigations had yet to be completed.

In refusing bail the learned Principal Resident Magistrate said inter alia when dealing G with the prosecution argument that relatives of the girls alleged to have been sexually assaulted were looking for the accused:

It can be stated with confidence that these relatives were not seeking the accused to pat him H on the back or congratulate him. Considering the outrageousness of the offence against the accused, I am inclined to believe that the accused, if he were to be granted bail, it would render his safety in jeopardy, so Panju v R. [1973] E.A. 282 is satisfied. ...I find that given the I nature of the offence with which the accused is charged, he will be better protected if he were to remain in custody.

1988 TLR p117

MZAVAS JK

The appellant was refused bail under section 148(5)(f) of the Criminal Pr. Act. This A section provides among other things that if it appears to the court that it is necessary that an accused person be kept in custody for his own protection or safety the court may order that such accused be so kept in custody.

The question this Court has to ask itself is how does the court come to the conclusion B that it would appear necessary that an accused must be kept in custody for his own protection or safety under section 148(5)(f) of the Criminal Pr. Act. If, as it was in this case, it is the prosecution which applies to the court that an accused be kept in custody under section 148(5)(f) the prosecution must show definite reasons supported by proved C and admitted facts showing reasonable cause for the belief that accused's safety would be in jeopardy if released on bail. Vague fears or suspicion by the police that accused's safety will be in danger will not suffice to refuse bail under section 148(5)(f) of the Criminal Procedure Act. D

In the present case all that the prosecutor told the trial magistrate was that reports reaching the D.C.I were that relatives of the girls alleged to have been violated by the accused were looking for the accused and that accused's safety was in danger. There was no evidence in the lower court to support such reports other than the mere word of the prosecutor. E

The test required under section 148(5)(f) is not whether it would be better for the accused to be kept in custody for his own safety but rather whether it is necessary that the accused should be kept in custody for his own good. Before the provisions of F section 148(5) (f) of the Act are invoked to the detriment of an accused person the prosecution must clearly show that accused's safety is in danger and such information must be verified as to its authenticity. And what is more the police must prove that circumstances were such that they are unable to protect an accused from alleged threats G to his safety.

It is always the duty of the police to ensure that persons who have already been charged in court and are on bail pending hearing of their cases are not harassed in any way by relatives of victims of the alleged crimes. The police should not shirk this honourable H responsibility by invoking the provisions of section 148(5) (f) of the Act.

It was a total misdirection by the learned Principal Resident Magistrate to say - "I find that given the nature of the offence with which the accused is charged he will be better I protected if he were to remain in custody". The learned trial magistrate by so saying
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MZAVAS JK
gives the impression that he refused the accused bail because of the nature of the offence A he is said to have committed not because his safety would be in danger if he was released on bail.
Before the provision of section 148(5) (f) are invoked by the court it must be clearly B shown that an accused's safety would be glaringly in danger and that circumstances are such that the police would not be in position to prevent such danger.
Many accused persons would be refused their statutory rights if the provisions of section 148(5)(f) are not strictly construed by the courts. In the present case there was no C suggestion in the lower court that the appellant would leave the jurisdiction of the court if granted bail nor was there any suggestion that the appellant was going to tamper with prosecution investigations if released on bail. Bearing in mind that the accused was arrested and brought to court on 27/5/88 the prosecution cannot, at this stage, be heard to say that investigations have not yet been completed. D
It is in the discretion of the court to decide whether or not to refuse bail under section 148(5)(f) of the Criminal Procedure Act. This discretion must always be vigilantly and justly exercised. This is all the more so where, as it is in this case, the accused himself E rebuts the prosecution argument that his safety would be in jeopardy if released on bail.
I agree with the learned counsel for the appellant that had the learned trial magistrated directed herself on these lines she would not have refused bail. In the event the appeal is upheld. F
The accused is released on bail on furnishing a bond of shs. 50,000/= with two sureties each in like sum.
G Appeal allowed.
1988 TLR p119
A
[zRPz]SUZANA KAKUBUKUBU AND TWO OTHERS v WALWA JOSEPH KASUBI AND THE MUNICIPAL DIRECTOR OF MWANZA 1988 TLR 119 (HC)

Court High Court of Tanzania - Mwanza
Judge Moshi J

19 July, 1988 B
Flynote
Land law - Ownership of land in a planning area - Whether a deemed right of occupancy is extinguished upon payment of compensation. C
-Headnote

The plaintiff held about 5 acres of land under the deemed right of occupancy. Due to poor health she invited relatives to live on it while she was staying in Dar es Salaam . In 1984, a survey was done on the piece of land resulting in two farms - Farm 2 and Farm 3. While Farm 2 was allocated to the plaintiff, Farm 3 was allocated to the first D defendant. Compensation in respect of Farm 3 was worked out and paid to those who were occupying it. Later the plaintiff came to know about the survey and allocation of Farm 3 to the first defendant. She, joining her children, sued the first defendant and the Municipal Director of Mwanza arguing that they were the lawful owners of Farm 3 E notwithstanding the compensation paid to third parties for the unexhausted improvements. One of the issues argued in court was whether or not payment of compensation for unexhausted improvements to the holder of a deemed right of occupancy or his agent or representative extinguishes that right. F

Held: (i) Payment of compensation to a holder of a deemed right of occupancy or to his agent or to his representatives extinguishes that right.

Case Information

Suit dismissed. G

Case referred to.

1. Mathuselah Paul Nyangwaswa v Christopher Mbote Nyirabu. Civil Case No. 4 of 1985, Dar es Salaam, (C.A.) (unreported) H

Maira, for plaintiffs

Kahangwa, for first defendant

Matata, for second defendant I

1988 TLR p120

MOSHI J

[zJDz]Judgment

Moshi, J.: The dispute between the parties involves the ownership of a parcel of land A measuring about 5 acres, presently know as Farms 2 and 3, measuring 2.17 and 2.8 acres respectively, in Bwiru area, which is a planning area, within the jurisdiction of Mwanza Municipal Council.

Mr. Maira, learned advocate, and Mr. Kahangwa, learned advocate, appeared for the B plaintiff and the first defendant respectively, whereas the Mwanza Municipal Council lawyer, Mr. Matata, represented the second defendant.

The case for the plaintiffs is that they are a family group-mother (PW1), elder son C (PW2) and younger son (PW3) respectively. The first plaintiff (PW1), who is now an old and blind woman, resides in Dar es Salaam with the second plaintiff (PW2), whereas the third defendant (PW3) is the Tabora T.T.C. Branch Manager. At an unknown time D in the distant past PW1 and her sister Sofia inherited the land in dispute from their father Ngunga. Sofia died, and PW1 stayed on the land with Sofia's sister Emersiana. About 13 years ago PW1 fell sick and went to Dar es Salaam, where she has resided todate, leaving the shamba under the care and management of Emersiana. She had two E houses on the land-one with a thatched roof and another with corrugated iron sheets roofing -and some crops - permanent and annual. The houses were on the part of the land which later became Farm 2, and site rate and service charge was being paid

in connection therewith. Emersiana invited their relative, Ndege Masandika, to stay with F her on the land, and upon the death of Emersiana in 1983, Ndege took over the care and management of the land with leave of PW1. Ndege was living on the proceeds of the land, and he was living in one of the two houses. He was cultivating a variety of crops on the portion of the land which later became Farm 3, together with four persons, G Mdongo (PW7), Mtoka (PW8), Machai (PW9) and Kilangi (PW10), who had been invited to the farm by Emersiana and PW1. By 1985 when the land in dispute was surveyed, these persons had stayed on, and cultivated, the land for over ten years.

In 1980 the third plaintiff (PW3) applied (Ext. P3) to the Mwanza Municipal Planner H (DW2) for the survey of their land in Bwiru. They wanted to build permanent houses and modernise their farming. A reply in 1983 (Ext. P4) was to the effect that the application would be attended to soon. In 1985 the plaintiffs then learned that the land had been surveyed giving rise to two Farm - farms 2 and 3. Farm 3 was offered to the first I defendant, and the five persons, including Ndege, were paid a compensation totalling

shs. 87,940/= for their crops and other unexhausted improvements. Farm 2 was A reserved for first plaintiff, and Ndege remained on Farm 2 taking care of the houses and the crops, on behalf of the first plaintiff, until his death in 1987. He was succeeded by one Maarifa Kinyozi (PW11) who is presently occupying that farm on behalf, and with the consent, of the first plaintiff. The plaintiffs were aggrieved, and felt that they were B robbed of their land - Farm 3 - and their letters of protest (Exts P1, P2, P6, P7 and P8) proved futile. They then filed the suit challenging the offer of Farm 3 to the first defendant, claiming that it was unlawful. C

The case for the defendants, on the other hand, was that in 1979 the first defendant (DW1), who is currently the Tabora Regional Commissioner, applied (Ext. D1) for a plot in any part of Bwiru area. He was then the Bariadi District Commissioner. In 1980 the third plaintiff lodged his application. The two applications were found and processed D by the Acting Municipal Planner (DW2) when he reported at Mwanza in 1982. He accompanied PW3 to the site, and PW3 showed him the area around the two houses - farm 2. He prepared a town planning drawing (Ext D6) for Bwiru area showing Farms 2 and 3 as Mwanza does not have a master plan. He made a survey request to the Acting Regional Land surveyor (DW3), and the survey was undertaken in 1984 giving rise to E Farm 2 and 3. The two applicants - the first plantiff and the first defendant, were allocated the farms - Farm 2 and Farm 3 - respectively. The use of the land was agricultural only, and according to the planning standards of that area, individual plots F were not to exceed 3 acres in size. The first defendant's offer was dated 28.11.85, and he followed up the offer and was duly issued with a certificate of occupancy No. 2155 (Ext D5) over Farm 3, Bwiru area, for a term of 99 years commencing from 1.10.1985. This was duly registered on 9th November, 1985, under number 20939. The certificate G of Title contains in its schedule a registered survey plan (Ext. D7) showing the boundaries of Farms 2 and 3. Compensation to the occupants of Farm 3 was processed by the Acting Municipal land officer (DW4) who was the Senior Assistant Valuer. He was introduced to the five persons by the secretary to the cell leader

(PW6) in the H presence of their CCM branch secretary and other villagers. They showed the demarcations of the farm and pointed out their crops and other unexhausted improvements. Their cell leader, Kafula, confirmed in writing (Ext D8) that Farm 3 belonged to Ndege. DW4 prepared a schedule of compensation (Ext D4) which I contained the names of the compensatees, a description of what they were being

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MOSHI J

compensated for, and the amounts due to them. They were paid and, without raising any A objections or complaints, duly signed the compensation schedule, as did DW4, the Regional Land Development Officer (DW5), the District Commissioner and the Regional Commissioner.

The first defendant is presently developing the land. It is the defendant's contention that B the first defendant is the legal owner of Farm 3, and that the right of occupancy issued to him was processed, and obtained, legally. The following issues, which I have taken liberty to restructure, were agreed upon: C

1. Whether the plaintiffs had a deemed right of occupancy before the relevant land was surveyed. If so ..
2. Whether the deemed right of occupancy was surrendered upon payment of compensation.
3. Whether the offer of the land to the first defendant by the second defendant was lawful. D
4. Whether a deemed rights of occupancy is applicable in an urban planning area.
5. Reliefs. E

But, in the course of the trial, it transpired that the first and fourth issues were not in dispute. It was conceded that the first plaintiff had a deemed right of occupancy over the F land in dispute in terms of section 2 of the Land Ordinance, Cap. 113, before the survey, as she had inherited it from her father. I say the first plaintiff, and not all the plaintiffs, for it was the first plaintiff who had inherited the land, and there was no evidence that she had bequeathed it, or any part thereof, to any of her sons - the second G and third plaintiffs. It was equally conceded that Bwiru area, where the land in dispute is situate, is a planning area within the Municipality of Mwanza. In addition to these matters not being in dispute, there was evidence from both sides which established issues 1 and 4 in the affirmative. I therefore, hereby hold, in connection with issues 1 and 4, H that before the survey the first plaintiff had a deemed right of occupancy, over the land in dispute, which is in the planning area of Bwiru, within the Municipality of Mwanza.

Issue number 2 attracted a heated argument from both sides. Mr. Maira submitted that there was no evidence that the President had either acquired or revoked the deemed I right of occupancy under either section 10 of Cap. 113 or section 45 of Cap. 378 respectively.

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MOSHI J

That may as well have been the case but, with respect, it appears to me to be out of A context, for the question before the court is whether the payment of compensation extinguished the deemed right of occupancy. The court was referred to a number of decided cases, the majority of

which, after having had sight of them, appear to me to be, again with even greater respect to Mr. Maira, out of touch with the point in issue, and B others, distinguishable from the present case. The nearest authority to the point cited was the Court of Appeal judgment in Methuselah Paul Nyangwaswa v Christopher Mbote Nyirabu - Civil No. 14 of 1985, Dar es Salaam (unreported) in which, according to Mr. Maira, it was held that a deemed right of occupancy, held by virtue of C native law and custom, is not extinguished upon an area being declared to be a planning area. Having had an opportunity to read the Court of Appeal judgment in Methuselah's case, I find myself unable to agree with Mr. Maira. That was not the ratio decidendi of the case. The decision of the Court of Appeal was different. The facts of D that case and the points for decision were different. What transpired, for our purposes, was simply that the Court of Appeal felt unprepared to positively hold that a deemed right of occupancy extinguishes upon an area being declared a planning area on the rather inconclusive and tenuous arguments advanced before it, and in view of the still E developing Tanzania law on Land and Land Tenure whose certain areas are unclear and would have to await the necessary legislation. Let me, for purposes of clarity, reproduce hereunder what Mustafa, J.A. said at page 5 of the judgment which formed the basis for Mr. Maira's argument: F

In my view the law in Tanzania on Land and Land Tenure is still developing and certain areas are unclear and would have to await the necessary legislation. At any rate, I am not prepared, G on the rather inconclusive and tenuous arguments advanced in this appeal, to hold that the right of a holder of a right of occupancy by virtue of native law and custom is extinguished and he thereby becomes a "squatter" on an area being declared a planning area. (Emphasis mine). H

I would agree with Mr. Kahangwa, and hold that, Methuselah's case is not a positive authority for or against a legal proposition that a deemed right of occupancy, either extinguishes or does not extinguish, upon an area being declared a planning area. However, the events in this case did not end with the land being declared a planning I area. Compensation for unexhausted improvements was

paid in connection with Farm 3 and, for my part, I would not hesitate to hold that A payment of compensation to a holder of a deemed right of occupancy, or his agent or his representative, extinguishes that right, for it would mean the surrender of the same. This takes us back to our question - whether the payment of the compensation extinguished B the first plaintiff's deemed right of occupancy in connection with Farm 3.

Mr. Maira has submitted that the compensatees were cultivators and/or users of the land with permission and were compensated only for their own unexhausted improvements. C He further argued that they had no right in the land which they could have surrendered since the interest in the land was with the first plaintiff. With respect, I am not, on the evidence, persuaded by that argument. The compensatees may as well have recognized the first plaintiff as the owner of the land, but it would appear that they kept that D knowledge to themselves. A different picture was portrayed to third parties. All the compensatees, except Ndege, physically stayed and

lived on Farm 3 where they had houses, families and a variety of crops. They had, with leave and knowledge of the first plaintiff, thus remained in occupation for over ten years. In actual fact, they were the E occupiers and developers of that land. It is in evidence that they did not tell DW4, at the time the compensation was assessed, that the land belonged to person or persons other than themselves. They were introduced by the village leaders (PW6) as occupiers of the land, and they then showed the boundaries of their land as well as their property. They F held themselves out to the assessors as the owners of the land, and they accepted the compensation without remorse or complaint. An attempt was made by Mr. Maira to challenge the procedure followed in assessing the compensation by claiming that the G compensation was effected by force and that the compensatees were not given the right of first option. With respect, I do not agree. It was established in evidence, including that of the compensatees themselves, that such a thing never happened. I am satisfied that the correct procedure was followed in the assessment, and in the effecting, of the compensation. In the circumstances, third parties, in my view, had a right to believe that H the compensatees were both the owners of the land and the property thereon. I find substance in the submission by the learned advocates for the defendants that, in the event that the first plaintiff's right of occupancy were not extinguished upon the land being declared a planning area, then it was most certainly extinguished upon payment of the I compensation.

1988 TLR p125

MOSHI J

The status of Ndege, in my view, aggravated the matter to the detriment of the plaintiffs. A He had been paid compensation, both for his unexhausted improvements and those of the first plaintiff. Mr. Maira argued that he was neither an agent nor a representative of the first plaintiff, whereas both Mr. Kahangwa and Mr. Matata maintained that he was. B He had been invited to the land by Emersiana, with leave of the first plaintiff, and took over the care and management of the land from Emersiana, again with leave of the first plaintiff, at the death of Emersiana. An attempt was made to show that there were things which Emersiana could do or was empowered to do, but which Ndege could not do or C was not empowered to do. In other words, an attempt was made to show that Emersiana as a representative of the first plaintiff, had more authority and more power of representation than that of Ndege. With genuine respect, I am not persuaded that there was such a distinction, or that such a distinction could be drawn. Evidence established D the contrary. Both Emersiana and Ndege were relatives of the plaintiffs. They both stayed in the houses of the first plaintiff on Farm 2. Ndege stepped into the shoes of Emersiana upon her death, and his terms of reference, as those of Emersiana, were allegedly verbal. Unfortunately, both Emersiana and Ndege are dead, and it remains a E matter for conjecture as to what their version of the instructions between themselves and the first plaintiff could have been. By opting to stay away from the land for over 12 years, leaving the same under the charge and management of Emersiana and Ndege, the first plaintiff must be taken to have intended that third parties should have taken the two F as persons with her express and implied authority to act on her behalf. It was no doubt in acknowledgement of this that the plaintiffs opted not to proceed against Ndege, but to let him continue to stay on the land until his death in

1987. There is evidence from the cell leader (Ext D8), which was introduced at the instance of the plaintiffs' advocate, that G Ndege was being regarded at the village as the owner of that part of the land which became Farm 3. This piece of evidence lands substantial support to what the Senior Assistant Valuer (DW4) told the court, that Ndege held himself out as the owner of Farm 3 at the time of the assessment of the compensation. Be that as it may, I do not H think, in my considered opinion, that it is now open to the plaintiffs to disown Ndege. I am satisfied that Ndege, as had been Emersiana, was the agent and representative of the plaintiffs, and that he had received the compensation on their behalf. For all the foregoing I reasons, I would, therefore, hold issue number 2 in the affirmative, and hereby find

that the first plaintiff's deemed right of occupancy over Farm 3 was surrendered upon A payment of the compensation.

Last in line for consideration is the third issue - whether the offer of Farm 3 to the first defendant was lawful. Mr. Maira's argument on this point was that as the plaintiffs had B the land, the second defendant had no land to allocate to the first defendant, and that the allocation was therefore unlawful with no legal force. It seems to me that this argument is now obsolete in view of my finding in issue 2. It is not in dispute that the second defendant is a planning authority. The first defendant had applied for a plot in Bwiru area C in the normal and usual manner. The evidence on record speaks for itself. There was no evidence of any fraud. The application was processed by the relevant competent authorities in the normal and usual manner. The compensation was assessed and paid under circumstances which, as already held, did not disclose any fault. I find nothing D suggestive of, let alone to establish, that the discretion to allocate the land was improperly exercised. The first plaintiff was not denied a piece of land. She has at her disposal Farm 2 which, in fact, is presently being occupied by a person of her choice (PW11). It is in evidence that according to the planning standards of the area, individual E plots were not to exceed three acres. I am satisfied that the first defendant's right of occupancy was issued in proper circumstances, and that it was obtained legally and without fraud. I hold the third issue in the affirmative.

In the final analysis therefore, I am satisfied, upon the foregoing reasons, that the F plaintiffs' claim must, on the balance of probabilities, fail. The suit is hereby dismissed with costs.

G Appeal dismissed.

[zRPz]STEPHEN KIAME SEFU v REGISTRAR OF TITLES 1988 TLR 127 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mapigano J

19 July, 1988

Flynote

Land law - Land registration - Submission for registration of a duly consented transfer B deed - Registrar of titles refuses registration pending sorting out of transfer problem with the Prime Minister's office - Whether these are irrelevant and extraneous reasons - When registrar can withhold registration.

Land law - Land Registration Ordinance, Cap. 334 - Aggrieved by decision of Registrar of C titles - Power of High Court - S.102 (1) and (9) of Land Registration Ordinance, Cap.334.

-Headnote

Appellant, a holder of a right of occupancy made a disposition by deed of the Right in D favour of one Hamoud Abdallah Sumry. Thereafter the appellant sought for and obtained consent for the disposition. He then submitted the transfer to the Registrar of Titles for registration. The Senior Assistant Registrar of Titles refused to register, contending that the appellant had first to sort out transfer problems with the Prime Minister's Office. Problems to be sorted out were not disclosed except for the E information that some kind of objection to the transfer had been lodged with the Prime Minister's Office. Aggrieved by the refusal to register the transfer, the appellant sought the intervention of the High Court. F

Held: (i) The appeal is brought under s.102 of the Land Registration Ordinance, Cap. 334 which allows any person who is aggrieved by a decision, order or act of the Registrar of Titles to appeal to the High Court within three months from the date of such decision, order or act;

(ii) the Land Registration Ordinance Cap. 334 has given no function to the office G of the Prime Minister and the respondent erred in law in refusing registration on account of matters that were irrelevant or extraneous;

(iii) once the appropriate authority has granted his approval to a transfer, The Registrar of Titles will have no discretion to withhold registration unless any of the H circumstances mentioned in s. 42 of Cap. 334 are present;

(iv) the Registrar of Titles erred in law and is directed to re-admit the appellant's application for registration and dispose of it in the manner provided by the relevant I provisions of the Land

1988 TLR p128

MAPIGANO J

Registration Ordinance, Cap. 334. A

Case Information

Appeal allowed.

No case referred to.

Patel, for the appellant B

[zJDz]Judgment

Mapigano, J.: Stephen Kiame Sefu, the appellant herein, was the holder of a Right of Occupancy over a parcel of land comprised in Title No. 16507 and described as Plot 13 Block J. Ilala, Dar es Salaam. In May, 1987, the appellant made a disposition of the C property in favour of one Hamoud Abdallah Sumry for a consideration of shs one million, and the disposition was duly effected by deed. The appellant afterwards sought for the consent of the appropriate authority to

the disposition and on 4/6/87 that consent was duly granted. Then the appellant submitted the transfer to the Registrar of Titles for D registration. That was on 17/6/87. By his letter addressed to the advocate of the appellant dated 3/9/87, the Senior Assistant Registrar of Titles, the respondent herein, declined to register the transfer. The reason given by the respondent in that letter was that the appellant had not "sorted out the transfer problems with the Prime Minister's E Office". The respondent did not specify those problems, but counsel for the appellant has informed the Court that certain members of the appellant's Office in relation with the transfer and that office had consequently advised the Registrar of Titles to postpone the registration of the transfer. F

The appellant was aggrieved by the refusal of the respondent and has thus come to this Court to challenge it. The appeal is brought under section 102(1) of the Land Registration Ordinance, Cap. 334. By that provision any person who is aggrieved by a G decision, order or act of the Registrar of Titles may appeal to the High Court within three months from the date of such decision, order or act. And by subsection (9) thereof the High Court may make such order on the appeal as the circumstances may require.

There is only one substantive ground of appeal and it is that the respondent erred in law H in refusing registration on account of matters that were irrelevant or extraneous. The respondent has inexplicably not appeared at the hearing of this appeal and it is reasonable to conclude that he is indifferent to these proceedings.

I am bound to accept the appellant's contention. The law of the case is, doubtless, the I Land Registration Ordinance, and upon reading that Ordinance I have to say, with respect, that I find no

function that has been given to the Prime Minster's Office in the whole scheme of A registration under that legislation. The power of the Registrar of Titles and his Assistants to refuse registration of transfers, absolutely or conditionally, is provided under section 42 of that Ordinance, which reads as follows: B

> If it appears to the Registrar that any deed presented for registration is improper in form or in substance, or is not clearly expressed, or does not indicate with sufficient precision the particular estate which it is intended to effect, or contains material provisions which are not the C proper subject of registration under this Ordinance or covenants or conditions which do not in law run with the land or are not capable of being annexed thereto, or is otherwise expressed in a manner inconsistent with the principles on which the land register is to be kept, he may refuse registration, either absolutely or subject only to such modification therein as he shall D approve.

It is my considered opinion, therefore, that once the appropriate authority has granted his approval to a transfer, the Registrar of Titles has no discretion to withhold registration E unless any of the circumstances mentioned in the above section actually obtains. So the respondent was in error at law.

In the event, I allow the appeal and set aside the decision of the respondent. I hereby direct the respondent to re-admit the appellant's application for registration and dispose F of it in the manner provided by the relevant provisions of the Land Registration Ordinance. I make no order as to costs.

G Appeal allowed.

1988 TLR p129

H

[zRPz]FATUMA MOHAMED v SAIDI CHIKAMBA 1988 TLR 129 (HC)

Court High Court of Tanzania - Mtwara
Judge Kazimoto J

22 July, 1988

Flynote

Family - Divorce - Separation - Division of matrimonial property - Court hearing divorce or I separation proceedings - Whether such court to hear issue on division of assets - Procedure.

1988 TLR p130

KAZIMOTO J

-Headnote

The High Court was requested by a lower court to give opinion on two matters which A appeared in the judgment of the lower court.

Held: (i) Where a petitioner petitions for a decree of divorce and in the same petition B he/she also prays for an order for division of matrimonial assets, the same court and the same magistrate should hear and determine both issues in the same file;

(ii) where a petitioner seeks and obtains a decree of divorce without at the same time asking for an order of division of matrimonial assets, and lodges the claim for C division later, the claim for division must be filed in the same court but need not be heard by the same magistrate and certainly there must be a different file.

Case Information

Opined accordingly.

No case referred to. D

[zJDz]Judgment

Kazimoto, J.: Section 79 of the Law of Marriage Act 1971 empowers a magistrate hearing a matrimonial proceedings to state a case for the opinion of the High Court E where any question of law arises. Rule 40 of the Law of Marriage (Matrimonial Proceedings) Rules Government Notice No. 136 of 1971 lays down the procedures on how to state a case to the High Court. This case has been forwarded to this court under the provisions of Rule 40 aforesaid. The High Court is requested to give an opinion on two matters: F

(a) Whether or not the same court that hears a petition for divorce is competent also to hear a claim on the matrimonial assets, and

(b) If the same court is competent, whether or not it should use the same record G of proceedings.

I deem it appropriate to preview the background which gave rise to these proceedings. Fatuma Mohamed whom I will refer to as the petitioner had petitioned for divorce H against Said Omary Chikamba whom I will also refer to as the respondent in Mtwara Urban Court. She had also petitioned in her petition for division of matrimonial property. The trial magistrate heard the evidence as regards the petition for divorce. Then he wrote a judgment in which he granted the divorce, having been satisfied that the marriage had I been proved to have irreparably broken down. The trial magistrate thus made this order:

1988 TLR p131

KAZIMOTO J

Amri: Mdaiwa anapewa nafasi na Mahakama kuleta mashahidi kama mdai hastahili A kugawiwa sehemu ya mali ambazo wamechuma wote wakati wa ndoa yao kwa juhudi za pamoja. The respondent then gave evidence and the court set a date to inspect the matrimonial B property. The respondent then went to the District Court, and, it would appear, lodged a complaint. The district magistrate wrote a letter to the trial magistrate instructing him to terminate the proceedings and advise the petitioner to file a fresh claim for division of matrimonial property. The matter came to the attention of the resident magistrate in C charge who believed that the case should have continued in the same file and before the same magistrate without having to open a fresh suit. In a nutshell then, this is all about this case.

It is necessary to examine the provisions of the Law of Marriage Act 1971 in order to D determine the procedure relevant when granting decrees for divorce and orders of divisions of matrimonial property. There are three sections and these are sections 106; 108 and 114 of the Law of Marriage Act. Section 106 deals with what is required to be E contained in a petition for divorce. Subsection (1) (f) of section 106 requires every petition for decree of divorce to state the terms of agreement regarding division of property acquired through the joint efforts of the parties or where no such agreement has been reached the petitioner should state his or her proposals. Section 108 of the Law of F Marriage Act 1971 imposes a duty on a court hearing a petition for a decree of separation or divorce to inquire into the arrangements made or proposed as regards maintenance and division of any matrimonial property and to satisfy itself that such arrangements are reasonable. Section 114 (1) provides: G

The court shall have power, when granting or subsequent to the grant of a decree of separation or divorce, to order the division between the parties of any assets acquired by them during the marriage by their joint efforts or to order the sale of any such assets and the H division between the parties of the proceeds of sale.

It should be noted at the outset that reading of sections 106, 108 and 114(1) shows that a party seeking an order for division of matrimonial property must plead in his or her I petition to that effect

1988 TLR p132

KAZIMOTO J

and must prove in court by adducing evidence to show that he or she contributed to the A acquisition of such property. An order for division of property is not therefore automatic upon the grant of a decree of divorce. When it is not pleaded and proved under section 106 (f) and section 108 the court has no power to enquire into the issue of B division and cannot make an order to that effect. Where a petitioner has pleaded for an order for division of matrimonial property in his or her petition he or she should be required to lead evidence at the same time and in the same proceedings regarding the relief of decree of divorce or separation. The court should first decide whether the C marriage has irreparably broken down and should it so hold it should proceed to consider and decide whether the property was a matrimonial property. If it is satisfied that the property is matrimonial property it should order division between the parties according to their contribution. Under this procedure which is contained in section 106 D of the Law of Marriage Act the same court
which hears the petition is empowered to hear and determine the issue of division of matrimonial property.
The wording of section 114(1) of the Law of Marriage Act provides a second procedure under which one may petition for an order for division of property. A party E may first seek a decree of divorce without at the same time asking for an order for division of matrimonial property. The court may, when satisfied grant the decree dissolving the marriage. Subsequent to the grant of the decree of divorce a party to the F proceedings may institute fresh proceedings claiming division of matrimonial property. It may be asked to which court should the subsequent proceedings for division of property be instituted. Section 114 (1) has the answer:

> The court shall have power, when granting or subsequent to the grant of a decree .... to order G the division between the parties of any assets acquired.....

It must be the court which granted the decree of divorce or separation and not any other court. The proceedings for division must be instituted in the same court which granted H the decree of divorce. But it may be asked whether the same magistrate must hear the proceedings for division. As a matter of law I would answer in the negative because this is quite a different issue.
In the present case the proceedings show that the petitioner had petitioned for divorce I and at the same time she also had asked for an order for division in her petition. She appears to have brought

her petition under section 106 of the Law of Marriage Act 1971. The petition for A divorce and order for division being in one and the same proceedings the court should have considered both issues and decided accordingly. It was wrong for the district Magistrate to have ordered the abandonment of the issue of division and directing the institution of fresh proceedings for division of property. B
Certainly the procedure which the trial magistrate adopted in this issue is queer and might have prompted the district magistrate to act in the way he did. As I have said the petitioner had asked for division of property in her petition. She gave evidence as to what property she was claiming division. The respondent gave evidence as to the petition C for divorce and it appears that he

gave no evidence to rebut the claim for division. The trial magistrate proceeded to grant divorce and order the respondent to defend himself as to why the petitioner was not entitled to the division of property jointly acquired during subsistance of the marriage. This procedure as adopted by the trial magistrate is D irregular under the circumstances of this case for after the grant of decree for divorce the petitioner did not lodge and claim for division and the respondent had no duty to defend himself. He should have defended himself before judgment in the petition had been delivered. E

Now as to the main points stated I would hold which I do as follows. Where a petitioner petitions for a decree of divorce and in the same petition he or she also prays for an order for division of matrimonial assets the same court, and the same magistrate should hear and determine both issues in the same file. This is in accordance with section 106 of F the Law of Marriage Act. On the other hand where a petitioner seeks and obtains a decree of divorce without at the same time asking for an order of division of matrimonial assets, and lodges the claim for division later, the claim for division need not be heard by the same magistrate and certainly there must be a different file. This is the procedure G obtainable subsequent to the grant of decree of divorce or separation as stated in section 114 of the Law of Marriage Act, 1971.

H Opined accordingly.

1988 TLR p134

A

[zRPz]RASHIDI HASSANI v MRISHO JUMA 1988 TLR 134 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Mtenga J

27 July, 1988

Flynote

Administration of estates - Failure to comply with mandatory legal provisions when filing B probate and administration cause.

-Headnote

This was an application to the High Court for revision of proceedings of a lower court in respect of probate and administration, with a request to quash the proceedings in the C lower court and to declare them null and void. The applicant argued that, when filing the cause in the lower court, mandatory legal requirements were not complied with.

Held: (i) Since the Respondent did not comply with the provisions of section 22 of the D Civil Procedure Code and rules 39, 73 and 75 of the Probate rules, there was no petition of probate and administration lodged with the District Court;

(ii) the proceedings in the District court and the resultant appointment of the E Respondent as administrator of the deceased's estate were null and void.

Case Information

Order accordingly.

Lipiki, for the applicant F
Mwajasho, for the respondent
[zJDz]Judgment
Mtenga, J.: This is an application for revision of proceedings of Ilala District Court at Kisutu in respect of Probate and Administration Cause No. 5 of 1988, with the request G of quashing the proceedings and declaring them null and void.
This application has been brought under the provisions of section 44(1)(b) of the Magistrates Courts' Act, 1984.
Mr. Lipiki learned counsel appears for the applicant whereas Mr. Mwajasho another H learned counsel appears for the respondent.
The application is supported by an affidavit of the applicant Mr. Rashidi Hassan. In the affidavit of the applicant which was enlarged upon by his learned counsel it has been deposed that in filing Probate and Administration Cause No. 5 of 1988 in Ilala District I Court at Kisutu the respondent did not comply with the provisions of the Civil Procedure Code and those of the Probate

and Administration Ordinance Cap. 445 of the Laws. Mr. Lipiki referred me to section A 22 C.P.C. which he argues to be a mandatory one. He further argued that rule 39 of the Probate Rules is also mandatory. Furthermore, Mr. Lipiki submitted that on perusing the record of the District Court in Probate and Administration Cause No. 5 of 1988 one can easily detect that there was no petition filed by the respondent and neither citation as B required by Rule 73 nor publication as required under Rule 75 of the Probate Rules. There were no court fees paid and the record does not say that the respondent was exempted from paying court fees.
Mr. Lipiki learned counsel conceded that there was a petition lodged by the respondent C for letters of administration in respect of the same deceased's estate at Kariakoo Primary Court but later there was an order to the effect that the petition be transferred to Ilala District Court. It was then the duty of the respondent to comply with the provisions of C.P.C. and Probate and Administration as above stated. Annexure "B" is the only D record at hand.
Mr. Lipiki learned counsel further contended that the respondent knew before Kariakoo Primary Court that the applicant was objecting to the respondent's application to be appointed as the administrator to the deceased's estate for it was the applicant who E moved the lower Kariakoo Primary Court to transfer the case to Ilala District Court at Kisutu but the respondent never notified the applicant that he had already filed Probate and Administration Cause No. 5 of 1988, at Ilala District Court. He therefore submitted that the proceedings in the lower Ilala District Court together with the appointment of the F respondent to the deceased's estate are null and void and they should be declared so.
Last but not least, Mr. Lipiki learned counsel submitted that there were errors apparent on the record in annexture "B" to the application, which errors are material to the merits G of the case involving injustice to the application and if Publication was made in Probate and Administration Cause No. 5 of 1988 the applicant would have objected it because by then the applicant had

already lodged an application No. 34 of 1988 involving the same deceased's estate. In annexture "B" annexed to the application the objector is H marked "absent" but it does not show if he was notified or not, yet the proceedings went on ex-parte.

In reply to that, Mr. Mwajasho learned counsel for the respondent submitted that the matter was first heard at Kariakoo Primary Court but later the applicant moved the I lower Kariakoo Primary Court to transfer the matter to Ilala District Court, therefore

it was the duty of the applicant to find it out as to whether or not it has already been A transferred there. Since the applicant did not do so, he slept on his own right and he cannot be heard to complain about it.

It is true as submitted by Mr. Lipiki learned counsel for the applicant that in filing B Probate and Administration Cause No. 5 of 1988 in Ilala District Court, the respondent did not abide himself within the ambit of the provisions of section 22 C.P.C. and rules 39, 73 and 75 of the Probate Rules. Indeed there was no petition of probate and administration lodged with Ilala District Court. There was neither citation nor publication C as required by the law. Court fees were never paid and there is no evidence to show that the respondent was exempted from paying court fees. To crown it all, the applicant was never notified of the hearing date of the objection at Ilala District Court though it is D evidently clear that the applicant was an interested person in the deceased's estate for he has already filed probate and Administration Case No. 34 of 1988 in respect of the same deceased's estate and it was he who moved Kariakoo Primary Court to transfer the matter to Ilala District Court.

It was therefore the duty of Ilala District Court to notify the applicant of the hearing date E of the matter.

Having so said I declare the proceedings in the lower Ilala District Court in Probate and Administration Cause No. 5 of 1988 together with the resultant appointment of the respondent as the administrator of the deceased's estate to be null and void and I quash F the proceedings and set aside the order of appointing the respondent as being the administrator of the deceased's estate. The respondent is to bear the costs of this application. If the parties are still interested in the deceased's estate then they should pursue the Probate and Administration Cause No. 34 of 1988 already pending in court G filed by the applicant. It is so ordered.

Order accordingly.

[zRPz]MOHAMED NDWATA v HAMISI OMARI 1988 TLR 137 (HC)

Court High Court of Tanzania - Dodoma
Judge Samatta J

20 July, 1988

Flynote

Family Law - Dissolution of marriage - Whether dowry and other traditional payments are recoverable - S. 71 Law of Marriage Act, 1971, and s. 3A Judicature and Application of Laws Ordinance Cap. 453.

-Headnote

In the Primary Court, the appellant won his claim for recovery of dowry and various traditional payments plus costs of the suit, on the ground that his wife had unreasonably refused to consummate the marriage. The respondent appealed to the District Court of Kondoa and the appellant was awarded just restitution of bride price. Hence this appeal against the decision of the District Court.

Held: Once a marriage has taken place any gifts, whether traditional or otherwise, given in contemplation of the marriage become the absolute property of the recipient and it cannot be diverted by subsequent divorce: s.7 of the Law of Marriage Act of 1971 which also supersedes rules of customary or Islamic law.

Case Information

Appeal dismissed.

No case referred to.

[zJDz]Judgment

Samatta, J.: This is a somewhat unusual litigation. The appellant had filed a suit in the Primary Court of Haubi, claiming from the respondent recovery of dowry and various traditional payments he made when he married the respondent's daughter. The marriage was dissolved by the Primary Court in an earlier case, apparently on the ground that the wife had unreasonably refused to consummate the marriage. In that court the appellant was partly successful. In an unanimous decision the court decided that the appellant was entitled to recovery of the dowry which had been paid, which amounted to Shs. 500/=, and Shs. 3459/=, being made up of Shs. 3300/= as the total of some of the traditional payments he had made, and Shs. 150/= being costs of the suit. The respondent was aggrieved by this decision. He strongly believed that the appellant was not entitled to any amount he was awarded. He accordingly appealed against the decision to the District Court of

SAMATTA J

Kondoa. The appeal was partly successful. The District Court held that the appellant (the respondent then) was entitled to a restitution of the bride price only. The appellant believed that the District Court's decision was not just. He still believes so. Hence the present appeal.

In my opinion the appeal must be dismissed. Whatever the legal position might have been under the Customary Law or the Islamic law, the law now, as I apprehend it, is that once a marriage has taken place any gifts, whether traditional or otherwise, given in contemplation of the marriage, become the absolute property of the recipients. The property cannot be diverted by subsequent divorce. This legal position is the effect of s. 71 of the Law of Marriage Act, 1971 (the Act), which reads as follows:

71. A suit may be brought for the return of any gift made in contemplation of a marriage which D has not been contracted, where the court is satisfied that it was made with the intention on the part of the giver that it should be conditional on the marriage being contracted, but not otherwise.

Any rules of Customary Law or Islamic Law which might have regulated the return of E gifts made in contemplation of a marriage are now superseded by the provisions of s. 71 of the Act, quoted above. The provisions of s. 3A of the Judicature and Application of Laws Ordinance, Cap. 453, make that perfectly clear. The section reads: F

3A. Notwithstanding the provisions of this Act the rules of customary law and the rules of Islamic Law shall not apply in regard to any matter provided for in the Law of Marriage Act, 1971. G

The various payments made by the appellant in contemplation of the marriage to the respondent's daughter were in effect, whatever name one attaches to them, gifts, and, H therefore, are covered by the provisions of s.71 of the Act. It follows that, in my considered opinion, in law the appellant is not entitled to the restitution of the said gifts.

I Appeal dismissed.

1988 TLR p139

A

[zRPz]SWAHELE HAMISI v REPUBLIC 1988 TLR 139 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Makame JJA, Kisanga JJA and Omar JJA

20 July, 1988 B

Flynote

Criminal Practice and Procedure - Sentencing - Whether the three and a half years spent by the accused in remand custody, his relationship to the deceased and that the deceased was the aggressor were factors which ought to have been considered by the trial Judge before imposing sentence. C

Criminal Practice and Procedure - Sentencing - Whether there was ground to show that sentence imposed on the appellant was excessive and that the trial judge erred in assessing it.

-Headnote

The appellant was convicted of manslaughter on his own plea of guilty and was D sentenced to six years imprisonment. He appealed against the sentence on the ground that the trial Judge did not consider other factors in passing the sentence.

Held: (i) The trial Judge did not fail to consider an important matter which he ought to E have considered in passing the sentence;

(ii) there were no adequate grounds to show that the sentence imposed on the appellant was excessive, and that the appellant action of attacking the deceased with a knife, a lethal

weapon, was completely beyond proportion to the alleged provocative act F done by the deceased to the accused.
Case Information
Appeal dismissed.
No cases referred to. G
Rugarabamu for the appellant.
[zJDz]Judgment
Kisanga, Makame and Omar, JJ.A.: The appellant was convicted on his own plea of guilty to manslaughter, and was sentenced to 6 years' imprisonment. He is now H appealing against the sentence.
In his memorandum of appeal, he raises the following mitigating factors:- That he was a first offender; he had been in custody for about 31/2 years prior to the passing of the I sentence; that he was related to the deceased and that the deceased was the aggressor.
1988 TLR p140
In assessing the sentence, the learned trial judge considered all these matters; but took A the view that the appellant's mode of retaliating by stabbing the deceased with a knife, a lethal weapon, was completely out of proportion to the deceased's act of merely kicking him. B
Mr. Rugarabamu, the learned advocate representing the appellant before us properly conceded that the memorandum of appeal, which was filed by the appellant, raises no new issues, and added that he himself had nothing to add to it.
We are satisfied that no grounds have been advanced to show that the sentence meted C out to the appellant was excessive, or that the learned trial judge was wrong in assessing it. Therefore there can be no ground for interfering. In the result, the appeal has no merit and is accordingly dismissed.
D Appeal dismissed.
1988 TLR p140
E
[zRPz]NYEHESE CHERU v REPUBLIC 1988 TLR 140 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Makame JJA, Kisanga JJA and Omar JJA

1 August, 1988
Flynote
Criminal Practice and Procedure - Assessors - Recruitment of a new assessor after the F hearing has started - Ground for vitiating the proceedings.
Criminal Practice and Procedure - Unsolicited order of the Court to exhume - Whether properly made. G
-Headnote

On 18/8/87 Korosso J. condemned to death the appellant Nyehese Cheru following his conviction for the murder of his wife Kema Ntahaliye. In the Court of Appeal the H appellant argued three grounds and prayed for a trial de novo. The respondent did not resist appellant's submission as he also felt that an order for a new trial would be the right thing. On 4/10/79 assessors Yusuf Omari and Mohamed Omari sat with Mushi, J. and on the following day the case was adjourned for good reasons. On 25/3/82 Omari Sungura and Hamis Kabwe in their capacity as assessors assisted Rubama, J. who I started hearing the case de novo. Due to unavailability of the remaining

prospective witness, the matter was adjourned four days later. Over two years later A Chipeta J. made the order that "As the learned trial Judge is away for treatment, hearing is adjourned to next session". After almost three years Korosso, J. took over the conduct of the case and on record it is indicated that he sat with Rubama, J.'s Omari Sungura and a new assessor Fadhiri Hamidi. B

Held: (i) Neither the old Criminal Procedure Code nor the current Criminal Procedure Act allows a new assessor to be recruited after the hearing has started;

(ii) under section 270 of the Criminal Procedure Code, what a trial judge was C empowered to do was to continue with only the remaining assessor or assessors;

(iii) under section 286 of the current Criminal Procedure Act, if an assessor is absent, the trial shall proceed before the remaining assessors but only if they are not less than two in number; D

(iv) both under the Code and under the Act the absence of an assessor had to be coupled with the condition that it is not practicable immediately to enforce his attendance.

Case Information

Appeal allowed. E

No case referred to.

Butambala, for the Appellant

Nyabiri, for the Respondent. F

[zJDz]Judgment

Makame, Kisanga and Omar, JJ.A.: The High Court sitting at Tabora (Korosso, J.) condemned to death the appellant Nyehese Cheru following his conviction for the murder of his wife Kema Ndabawaliye, the mother of P.W.1 and P.W.5. Mr. G Butambala, learned advocate representing the appellant before us, filed a total of six grounds, but in the event argued only three, and prayed for a trial de novo. Mr. Mussa, learned attorney for the respondent Republic, did not seek to resist Mr. Butambala's submissions as he, too, felt that an order for a new trial would be the right thing. H

With respect, we think that the case could have been presented and tried a lot more carefully.

Mr. Butambala's first complaint was that the learned High Court judge, when he took over, tried the case with one original assessor and another quite new assessor. We wish I first to observe two things in connection with this ground: First, that there is no

indication in the record as to what happened to the gentleman assessor who disappeared A from the scene, Hamisi Kabwe, and why, therefore, it was felt necessary to import a new gentleman assessor, Fadhiri Hamidi. Second, that Mr. Nyabiri, learned State Attorney conducting the case before Korosso, J., clearly misled the trial court when he B informed it, on 18th August, 1987, that "The two Gentlemen Assessors are the very ones who participated in the trial of the case with the previous judge." This was patently incorrect, and quite misleading. In this case, which had a chequered history, assessors Yusuf Omari and Mohamed Omari sat with Mushi, J.; Omary Sungura and Hamisi C Kabwe assisted Rubama, J., when the trial started de novo and the evidence of four Prosecution witnesses was taken; and then, when Korosso, J., took over and heard the last witness, Juma Nyemese, he sat with Rubama J's Omary Sungura and as aforesaid, a new person, Fadhiri Hamidi.

Mushi, J. heard one witness on 4th October 1979 and on the following day, for a good D reason clearly recorded, and to which we shall have occasion to refer later in this judgment, the case was adjourned. On 25th March, 1982 Rubama, J. started hearing the case afresh and four days later he adjourned the matter because the remaining E prospective witnesses were not available. When over two years later, on 4th September, 1984, Juma Nyehese showed up Chipeta, J. made the following order. "As the learned trial judge is away for treatment, hearing is adjourned to next session. Accused F.R.I.C." Then apparently nothing else happened until after almost three more years when, on 18th F August 1987, Korosso, J. took over the conduct of the case.

Neither the old Criminal Procedure Code nor the current Criminal Procedure Act allows a new assessor to be recruited after the hearing of the case has started. Under Section G 270 of the Criminal Procedure Code what a trial judge was empowered to do was to continue with only the remaining assessor or assessors. Under Section 286 of the current Criminal Procedure Act if an assessor is absent "the trial shall proceed before the remaining assessors but only if they are not less than two in number ...." And both under H the Code and under the Act the absence of an assessor had to be coupled with the condition that it is not practicable immediately to enforce his attendance.

This first ground of complaint is enough to vitiate the proceedings, but there is more.

The second ground argued by Mr. Butambala was that in taking over the conduct of the I proceedings Korosso, J. was

presumably acting under the Criminal Procedure Act. As Mr. Butambala pointed out, if A that was so then Mr. Nyabiri referred the learned trial judge to the wrong section, section 264. The relevant section would have been section 299, in which case the learned judge did not fully comply with the provisions of the law under that section. If the continued trial purported to be under the Code there was no enabling section: Section B 196 of the Criminal Procedure Code of course only applied to trials in the subordinate courts. This second ground is also weighty.

The third ground argued by Mr. Butambala was that, in any event, the evidence on record could not have been relied on to arrive at the conclusion that the appellant was of C sound mind when he allegedly killed the deceased. The trial court apparently did not get a feed back to the order made by Mushi, J. that:

It is therefore ordered that the Accused be sent to Isanga Institute (sic) in accordance with D section 168A of the Criminal Procedure Code .....

In the course of his judgment Korosso, J. remarked that "On the evidence, the question of provocation or insanity cannot arise." In view of the background we think it would E have been in the interest of justice for the trial court to equip itself with the report from Isanga, which should have been available at the purported trial some eight years after Mushi, J. had made his order.

We respectfully agree with both learned Counsel that the proceedings should be F quashed. The appeal is thus allowed and the proceedings are accordingly quashed. We order a new trial.

There is one other thing we desire to make a brief comment on. The learned trial judge ordered that the deceased's body should be exhumed and given to the deceased's G relatives because it is "their birth right to bury their dead." This unsolicited order was made in August 1987, nearly ten years after the deceased's body had been interred. We are not so sure that the deceased's relatives would be anxious to see the mortal remains of their dear one after so many years. There might be aesthetic inhibitions and for all we H know it may well be taboo for them to handle what remains. They were not given a chance to decide. As these proceedings have been quashed the said order naturally goes with them, if, that is, it has not yet been carried out.

I Appeal allowed.

1988 TLR p144

A

[zRPz]DPP v JUMANNE RAJABU 1988 TLR 144 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Omar JJA, Makame JJA and Kisanga JJA

6 August, 1988

Flynote

Criminal Practice and Procedure - Discharges - Accused discharged under s. 225(5) of the B Criminal Procedure Act - Whether discharge lawful.

-Headnote

This appeal is against the High Court ruling in which the respondent was discharged C upon a charge of murder. The accused and six - co accused were still in remand while investigations were being carried out. Mr. Tendwa for the appellant argued that the High Court cannot apply s. 225(5) of the Criminal Procedure Act as it concerns trials by D subordinate courts which in the case murder was not triable by a magistrate. Kwikima, for the respondent, impressed on the

court that if the investigation was dragging the respondent cannot remain in remand indefinitely.

Held: Section 225(5) of the Criminal Procedure Act cannot be used to release a person E who is unduly kept in remand pending the completion of investigations as to do so would be inconsistent with the meaning of that provision.

Case Information

Appeal allowed. F

No case referred to.

Jandwa, for appellant

Kwikima, for respondent. G

[zJDz]Judgment

Omar, Makame and Kisanga, JJ.A.: This is an appeal by the Director of Public Prosecutions against the ruling of the High Court in Miscellaneous Criminal Cause No. 1 H of 1987, which discharged Respondent Jumanne Rajabu from the case of murder facing him. Repondent's six co-accused awaiting P.I. like Rajabu were also ordered to be discharged.

Appellant Republic represented by Mr. Tendwa, learned State Attorney, in arguing his grounds of appeal said that discharge was confined to trial only and there was no trial at I the District Court, only adjournments for more than a year. The Magistrate could not

have discharged the accused person under section 225 (5) Criminal Procedure Act A because there was no trial and the offence of murder is not triable by him. And High Court cannot act under section 225 (5) Criminal Procedure Act because this provision concerns trials by subordinate Courts (See part VII of the Criminal Procedure Act). B High Court has inherent powers to grant bail but there was no "information" before the High Court, therefore the case was not ready for trial yet.

Mr. Kwikima learned Counsel for the respondent who made his first application to the District Court and then appealed to the High Court against the ruling of the District Court C admitted that for him it was a shot in the dark because he felt if the investigations were not ready or were dragging on indefinitely the accused person cannot be made to suffer being in remand indefinitely. The Court must have powers to rescue the accused person faced with this situation. D

We are of the considered view that the Republic can be persuaded by the Court to withdraw the charge against the accused if investigations are not ready and the accused is unduly kept in remand custody. But to invoke section 225(5) of Criminal Procedure Act for this purpose is to misconstrue the meaning of this section. Neither the High Court E nor the District Court in the circumstances of this case could have used this particular provision of the law.

We order that the respondent who had been wrongly discharged be arrested and remanded in custody together with his six co-accused so that they may await their trial in this case. F

Appeal allowed.

A

[zRPz]JUMUIYA YA WAFANYAKAZI TANZANIA v KIWANDA CHA UCHAPISHAJI CHA TAIFA 1988 TLR 146 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Nyalali CJ, Mustafa JJA, Makame JJA, Kisanga JJA, and Omar JJA

25th August 1988 B

Flynote

Labour law - Trade dispute - Permanent Labour Tribunal Act - Security of Employment Act - How a trade dispute can reach the Permanent Labour Tribunal.

Precedent - Stare decisis - Per incuriam rule - Whether Pallangyo's case was decided per C incuriam - Whether Pemanent Labour Tribunal and High Court are bound to follow a dictum in Pallangyo's case - Whether the Court of Appeal has jurisdiction to overrule its earlier decisions.

-Headnote

This matter arose out of trade dispute. It concerned the redundancy of 94 KIUTA D employees who were JUWATA members. When the matter was referred to the Parmanent Labour Tribunal, the Tribunal relying on the Court of Appeal decision in the E case of Zambia Tanzania Road Service Ltd. v J.K. Pallangyo Civil Appeal No. 9 of 1982, held that it had no jurisdiction to entertain the dispute.

Being aggrieved JUWATA, unsuccessfully, appealed to the High Court applying for orders of certiorari and mandamus. Aggrieved again, JUWATA appealed to the Court of Appeal.

Held: (i) The decision in Pallangyo's case, in so far as it requires a trade dispute to be F reported to a Concilliation Board before it is entertained by the Permanent Labour Tribunal, and to the extent that it applies the provisions of section 40A of the Security of Employment Act to the members of Management, was decided per incuriam; G

(ii) all courts and tribunals below the Court of Appeal are bound by decisions of the Court regardless of their correctness;

(iii) the Court of Appeal should be free in both civil and criminal cases to depart from such previous decisions when it appears right to it do so; H

(iv) circumstances of this case require us to exercise our unique jurisdiction in favour of the appellants so that justice may be done. The rights of the parties in Pallangyo's case are not altered by this decision. I

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NYALALI CJ, MAKAME JJA, KISANGA JJA AND OMAR JJA

Case Information

Appeal allowed. A

Cases referred to.

1. Zambia Tanzania Road Services Ltd. v J.K. Pallangyo Civil Appeal no. 9 of 1982.
2. Dodhia v National Grindlays Bank Ltd. & another [1970] E.A. 195 B

Kapinga and Tenga for the appellants
Rutagatina and Chenge for the 1st and 2nd respondents respectively C
[zJDz]Judgment
Nyalali, C.J., Mustafa, Makame, Kisanga, and Omar, JJ.A: This matter arose out of a trade dispute which was referred to the Permanent Labour Tribunal by the Minister responsible for labour matters under section 8 sub-section (1) of the Permanent Labour Tribunal Act, 1967 on the 2nd May, 1986. The trade dispute concerns, Jumuiya ya D Wafanyakazi Tanzania, commonly known by its acronym as JUWATA, on one side, and the firm of Kiwanda cha Uchapishaji cha Taifa commonly known by its acronym as KIUTA, on the other side. The trade dispute centres on the redundancy of 94 E employees of KIUTA, who were also members of JUWATA. When the matter came up for adjudication by the Tribunal on the 3rd September, 1986, a preliminary matter arose concerning the jurisdiction of the Tribunal to entertain the trade dispute. Acting on the authority of a decision made by a bench of three judges of this Court in the case of F Zambia/Tanzania Road Services Ltd. v J.K. Pallangyo in Civil Appeal No. 9 of 1982 (unreported), the Tribunal held that it had no jurisdiction to entertain the dispute on the ground that the matter had not been previously referred to a conciliation board under the provisions of section 40A of the Security Employment Act, 1964, Cap. 574 as amended G by the Labour Laws (Miscellaneous Amendments) Act, 1975.
Predictably JUWATA was aggrieved by the refusal of the Tribunal to entertain the dispute and it sought and obtained leave to apply for order of certiorari and mandamus in the High Court where the Permanent Labour Tribunal was joined as the second H respondent, whereas KIUTA appeared as the 1st respondent. On the 18th June, 1987 the High Court, Maina, J., dismissed the application on its merits. JUWATA was further aggrieved by this decision of the High Court, hence this appeal to this Court. In the proceedings before this Court, the Attorney-General was joined as the 2nd respondent I instead of the Tribunal, whereas KIUTA remained as the 1st

respondent. All the parties were legally represented before us. Messrs Kapinga and A Tenga, learned advocates from the Legal Aid Committee of the Faculty of Law of the University of Dar es Salaam, appeared for the appellants, whereas Mr. Rutagatina, from the Tanzania Legal Corporation, appeared for the 1st respondent and Mr. Chenge, B Principal State Attorney, represented the 2nd respondent.
From the proceedings in this Court, the following matters of law are not in dispute between the parties. It is common ground that the relevant basis law applicable to the matter before us is contained in the Permanent Labour Tribunal Act 1967 and the C Security of Employment Act 1964, Cap. 574. The former Act concerns the settlement of collective disputes between employees and their employer whereas the latter concerns the settlement of non-collective disputes. The basic difference between the two is that in D a collective dispute there are more than one employee acting in concert and in conflict with their employer, whereas in the latter, a single employee is in conflict with his employer. It is common ground also that decisions of the Court of Appeal of Tanzania are binding upon any tribunal acting either under the Permanent

Labour Tribunal Act, 1967 or the Security of Employment Act, 1964 by virtue of the common law doctrine of E precedent.

The appellants' case before this Court is contained in the memorandum of appeal and the submissions made by learned advocates for the appellants in the course of the F appeal. Three grounds of appeal were submitted by the appellants as follows:

1. The Hon. judge erred in law in holding that the judgment of this Honourable Court in Zambia/Tanzania Road Services Ltd. v J.K. Pallangyo, civil appeal No. 9 of 1982 (unreported) was not delivered per incuriam and G therefore the Permanent Labour Tribunal was bound to follow it.

2.(i) the Hon. Judge erred in law in holding that section 40A of the Security of Employment Act, Cap. 574 applied to trade disputes under section H 4(1) of the Permanent Labour Tribunal Act 1967;

(ii) the Hon. judge erred in law in holding that reference of a trade dispute to a conciliation board within 14 days under section 40A of the Security of I Employment Act was

a condition precedent to be fulfilled before the Permanent Labour A Tribunal could hear and determine a trade dispute.

In elaborating these grounds of appeal, Mr. Kapinga, learned advocate, who dealt with the second ground of appeal, and Mr. Tenga, learned advocate, who dealt with the first B ground of appeal, submitted in effect that the Permanent Labour Tribunal Act and the series of legislation that preceded it are separate and independent from security of Employment Act and the series of legislation that preceded it. Mr. Kapinga further submitted to the effect that this Court in Pallangyo's case erred in applying the C provisions of section 40A of the Security of Employment Act to proceedings under the Permanent Labour Tribunal Act 1967. By so doing, he argued, the court appeared to amend the latter Act by incorporating into it provisions derived from the Security of Employment Act. Mr. Tenga, who addressed us on the 1st ground of appeal, submitted D also that the relevant rule in Pallangyo's case was decided by this Court in ignorance of the existence of these two separate and independent legal schemes for settlement of disputes between employees and their employers.

On the other hand, Mr. Rutagatina, learned advocate for the 1st respondent, submitted E in effect that the court in Pallangyo's case was right in applying the provisions of section 40A of the Security of Employment Act to proceedings under the Permanent Labour Tribunal Act, by prescribing a specific period for reference of trade disputes to the Permanent Labour Tribunal; thereby filling in a gap left open by the legislature. F However, Mr. Chenge, learned Principal State Attorney for the 2nd respondent, does not support this stand of the 1st Respondent and instead agrees with the submissions made for the appellant on this point.

It is apparent that the dispute in this case centres on the correctness of the relevant rule G in Pallangyo's case. The relevant rule appears in the following paragraph of the judgment in that case:

Admittedly there are no provisions under the Permanent Labour Tribunal Act relating to the H limitations of actions. But the view that claims brought under that Act are not subject to limitation seems untenable. If that view were to be upheld, the implication of it is that where an employee thinks that the termination of his services is wrongful, he may delay lodging his I grievance for ten or twenty years or even for an indefinite

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period. We think that is undesirable and would be objectionable. Such employee must act A promptly in seeking to vindicate his rights. For purposes of good and efficient management also, the employer should know of the final position as soon as is practicable so that he can take other necessary steps, for example, to consider filling the vacancy left by the employee in B question. Even assuming, as Mr. Muccadam contends, that the respondent was in the management of the business of his employer, we think that the provisions of section 40A of the Security of Employment Act quoted above applied to him. C

The first specific issue that arises in this dispute is whether Pallangyo's case, in so far as it concerns the rule quoted above, was decided per incuriam. The expression per incuriam, according to Jolowit's Dictionary of English Law, 2nd Edition, means: D "Through want of care. A decision or dictum of a judge which clearly is the result of some oversight". The meaning of that expression is further stated by Sir Raymond Evershed M.R. in the case of Morelle Ltd. v Wakeling [1955] (1) All E.R. at page 708 in the following words: E

As a general rule the only cases in which decisions should be held to have been given per incuriam are those decisions given in ignorance or forgetfulness of some inconsistent F statutory provision or some authority binding on the court concerned, so that in such cases some part of the decision or some step in reasoning on which it is based is found, on that account, to be demonstrably wrong. This definition is not necessarily exhaustive, but cases not strictly within it which can properly be held to have been decided per incuriam must in our G judgment, consistently with the stare decisis rule, which is an essential feature of our law, be, in the language of Lord Green, M.R., of the rarest occurrence.

Undoubtedly, the provisions of section 40A of the Security of Employment Act, 1964 H belong to the scheme for the settlement of non-collective disputes involving a single employee in conflict with his employer. That scheme was introduced in this country for the first time in 1924 under the Master and Native Servants Ordinance, Cap.78, and I was subsequently continued by the Employment Ordinance Cap. 366 with effect from 1st February,

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1957, and was modified by the Security of Employment Act 1964 with effect from 1st A May, 1965 (subsequently amended by the Labour Laws (Miscellaneous Amendments) Act 1975) and by the Employment Ordinance (Amendment Act) 1969. Essentially, prior to the Security of Employment Act, this scheme provided for the settlement of B non-collective disputes by adjudication before a subordinate court. Prior to the Employment Ordinance (Amendment) Act 1969, proceedings before such subordinate court were basically criminal in nature. Under the

amendment of 1969 a subordinate court was vested with both criminal and civil jurisdiction which it could exercise depending on the nature of a particular case (see sections 134 and 124A). However, the C Security of Employment Act as amended by the Labour Laws (Miscellaneous Amendment) Act 1975 ousted the jurisdiction of subordinate courts from specified matters, which were transferred to the exclusive jurisdiction of counciliation boards established under that Act. These specified matters were those concerning summary D dismissal, deduction in wages by way of disciplinary action and statutory compensation. Under the Security of Employment Act, an appeal from a decision of a conciliation board in these specified matters lies to the Minister responsible for labour matters and E his decision is final. Section 40A of the Act prescribes a period of 14 days within which a dispute has to be referred by an aggrieved employee to a conciliation board.

As for the scheme for settlement of collective disputes, it came into being for the first time in 1947 under the Trade Disputes (Arbitration and Inquiry) Ordinance, 1947. The F scheme was continued by the Trade Disputes (Arbitration and Settlement) Ordinance with effect from 19th January, 1951 and by the Trade Disputes (Settlement) Act 1962 Cap. 480, and, finally by the Permanent Labour Tribunal Act 1967.

Essentially, the scheme prescribes four methods for the settlement of collective disputes. G Firstly, by conciliation before a labour officer (see sections 4(2) and 6 of the Permanent Labour Tribunal Act 1967); secondly, by adjudication before a tribunal (see sections 4(4) and 8 of the Permanent Labour Tribunal Act. Thirdly, by inquiry and report of the Tribunal (see section 9 and 9A and 9B of the Permanent Labour Tribunal H Act. Fourthly by Advice of the Tribunal (see section 10 of the Act). These methods of settlement of collective disputes existed in all the relevant legislation since 1947 except the fourth one which came into being in 1967. At no stage in the history of this system I was a specific period prescribed for initiating a trade dispute. The reason is obvious. A trade dispute

comes into existence only when it is declared by referring the matter to the labour A commissioner. Until such a reference is made, any conflict between employees and their employer amounts to no more than an apprehended trade dispute capable of being dealt with under the provisions of sections 9, 9A and 9B of the Permanent Labour Tribunal Act, 1967. B

The Security of Employment Act, 1964 as amended by Act No. 45 of 1969 introduced another feature into the scheme for settlement of non-collective disputes which did not exist prior to 1964. This concerns categories of employees who are covered by the C Security of Employment Act. Under the provisions of section 4 paragraph (e) of the Act, any person who is considered by a labour officer to be a member of the management of a business is not an employee for purposes of proceedings under the Act. In Pallangyo's case the court overlooked this statutory position. For this reason together D with the reasons given earlier we are satisfied that the decision in Pallangyo's case in so far as it requires a trade dispute to be reported to a conciliation board before it is entertained by the Permanent Labour Tribunal, and to the extent that it applies the

provisions of section 40A of the Security of Employment Act to members of the management, was decided per incuriam. E

The second specific issue in the dispute is whether the Permanent Labour Tribunal and the High Court are bound to follow the dictum in Pallangyo's case. Notwithstanding what is stated in the first ground of appeal, both advocates for the appellants agreed in F the course of the hearing of this appeal, that under the common law doctrine of precedent, which is one of the pillars of the law of this land, all courts and tribunals below this court, are bound by the decisions of the court, regardless of their correctness. We have no doubt that this is a sound position which is necessary for the Rule of Law. It G follows therefore that the Permanent Labour Tribunal acted properly in refusing to entertain the trade dispute in the legal circumstances prevailing at the time.

The third specific issue in this dispute is whether this court has jurisdiction to over-rule its earlier decisions. There is common ground between all the parties that this court has such H jurisdiction in certain circumstances. The only dispute is whether Pallangyo's case falls within those circumstances. We are in general agreement with the parties on the question of jurisdiction for the following reasons. Historically this Court is the successor I to the Court of Appeal of East Africa in respect of the United Republic of Tanzania. The Court of Appeal of East Africa had jurisdiction to over rule its

earlier decisions within the scope stated in the case of Dodhia v National & Grindlays A Bank Ltd. and another, [1970] E.A. p. 195 at pp. 198 to 200 as follows:

> It is, I think, beyond dispute that since this Court became the final Court of Appeal for the B sovereign countries of Kenya, Tanzania and Uganda no decision of the Privy Council or of any English court or of any foreign court is binding on this Court. Indeed, no such decision would be binding on any court in Kenya, Tanzania or Uganda, unless it was a decidion of the Privy Council on an appeal from any of these countries, though in so far as any such decision sets C out what is the English law, the High Courts of Kenya, Tanzania and Uganda would normally accept such to be the position and this Court would, I have no doubt, have regard to any decision of an English court setting out what is the English law. It would, however, always D be a matter for the courts of Kenya, Tanzania and Uganda to decide what is the law of those countries. Even where English law is applied in any such country, its application would be subject to such modifications as the circumstances of the country and its inhabitants required; E and it would be for the court of such country to determine what those modifications if any, would be in any particular case in order to determine what is the law of such country
>
> I accept that a system of law requires a considerable degree of certainty and uniformity and F that such certainty and uniformity would not exist if the courts were free to arrive at a decision without regard to any previous decision. I also accept that subordinate courts are bound by the decisions of superior courts and that a subordinate court of appeal should normally be bound by a previous decision of its own. But there is a great difference between a final court of appeal G and a subordinate court of appeal. If it is considered that a decision of a subordinate

court of appeal was wrong it would always be open to have it tested and if necessary rectified in the final court of appeal. This would not be possible in the case of the decision of a final court of H appeal. Thus, on the face of it, there is a need for great flexibility in a final court of appeal than there is in any other court in the judicial hierarchy. Further, the need for such flexibility is the greater and not the less in a developing country, as there is a greater likelihood of rapid I changes in the customs, habits and needs of its people,

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which changes should be reflected in the decisions of the court of appeal. It should, moreover, A be borne in mind that too strict an adherence to the principle of stare decisis would, in fact, defeat its object of creating certainty, as a final court of appeal faced by a decision which was B unsuited to the present needs of the community would seek to distinguish it. The results of distinguishing a decision when there was no real difference results in uncertainty, an uncertainty which would not exist if it were clearly stated that the old decision was no longer the law. It must also be remembered that the Privy Council, when it was the final court of C appeal for Kenya, Tanzania and Uganda, never considered itself bound by its previous decisions. It would seem a retrograde step for this Court, now that it has taken over the functions of a final court of appeal for these countries, to discard the flexibility previously possessed by the final court of appeal and instead adopt a position of rigidity. D

For these reasons I am satisfied that as a matter of judicial policy this Court as the final Court of Appeal for Kenya, Tanzania and Uganda, while it would normally regard a previous decision E of its own as binding, should be free in both civil and criminal cases to depart from such a previous decision when it appears right to do so. It will, of course, exercise this power only after careful consideration of the consequences of doing so and the circumstances of the F particular case, but I would not seek to lay down any more detailed guide to the circumstances in which such a departure should take place as the matter would be best left to the discretion of the Court at the time it was up for consideration.

That was the position of the Court of Appeal for East Africa on this point. Since the G Court of Appeal of Tanzania is a successor of the former court, it stands in the same position as its predecessor, unless the law establishing it expressly provided to the contrary. A close scrutiny of the Constitution of the United Republic and the Appellate H Jurisdiction Act, 1979 shows that the Court of Appeal of Tanzania has been vested with more powers than its predecessor had. For instance, the Court of Appeal of Tanzania has jurisdiction in constitutional matters whereas its predecessor had none in so far as Tanzania was concerned. In short, the Court of Appeal of Tanzania has inherited all the I jurisdiction vested in its predecessor and has in

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addition, been granted more. The Court thus has the jurisdiction stated in the Dodhia's A case.

The fourth specific issue in the dispute is whether the decision in Pallangyo's case to the extent that it was given per incuriam ought now to be over-ruled by this Court. Mr. Rutagatina, learned advocate for the 1st respondent has submitted in effect that this B Court should not over-rule

that decision because such an action would disturb the status quo. On the other hand, M/S Kapinga and Tenga, learned advocates for the appellants, have urged this Court to over-rule the decision on the basis that the existence of this precedent has paralysed the system for settlement of trade disputes. Mr. Chenge, C learned Principal State Attorney for the 2nd respondent, is basically in agreement with the stand of the appellants. In our considered opinion, we think that so long as Pallangyo's case continues to exist as a precedent, there can be no trade dispute referred to the Permanent Labour Tribunal. This is because, according to Pallangyo's D case, every trade dispute must first be reported to a conciliation board. But once such a reference is made, there can be no way of getting such a trade dispute back to the Permanent Labour Tribunal. That path leads to the Minister responsible for labour matters whose decision is final. In any case, as we have already demonstrated, a E conciliation board has no jurisdiction over collective disputes. We are aware that this present case is a test case which will set in motion the machinery for settlement of a number of trade disputes which currently cannot be processed either by the Permanent F Labour Tribunal or the conciliation boards, because of the Pallangyo's decision. We are satisfied that the circumstances of this case require us to exercise our unique jurisdiction in favour of the appellants so that justice may be done. We are aware that such a decision in this case will not alter the rights of the parties in the Pallangyo's case, G since the overall decision in that case to the effect that the Permanent Labour Tribunal had no jurisdiction to entertain the trade dispute in question, does not depend entirely on the rule given per incuriam, but depends also on the finding that the trade dispute was not a collective one: it concerned a single employee, that is, Mr. Pallangyo. Pallangyo's H case cannot therefore be reopened before the Permanent Labour Tribunal as a result of our decision in this case.

In the final analysis therefore, we allow this appeal by setting aside the decision of the High Court and the Permanent Labour Tribunal and directing the Permanent Labour Tribunal to proceed I

to hear the trade dispute declared by JUWATA on behalf of its 94 members, with the A costs to the appellants.

Appeal allowed.

B

[zRPz]NTIYAHELA BONEKA v KIJIJI CHA UJAMAA MUTALA 1988 TLR 156 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

27 August, 1988 C
Flynote

Land law - Eviction - Lawful occupier of land - Eviction from the land for no fault of occupier - Reason for eviction being "nationalization" - Whether such lawful occupier is entitled to D compensation.

Constitutional law - "Nationalisation" --Right to compensation.

-Headnote

The appellant was in lawful occupation of a piece of land for many years. The authorities E measured 10 acres of virgin land and authorised the appellant to develop the same for his own use. The appellant cleared the bush, and by 1978 he had 477 banana trees and was also growing therein seasonal crops. In October, 1981 the respondents moved into F the shamba and told the appellant to vacate because they had "nationalized" it on the ground of newly drawn boundaries between Kasengezi village (the appellant's) and the respondents village, that is, Mutala village. When the appellant asked the respondents to compensate him for his labour, they refused and told him to remove his crops from the G shamba. The appellant filed suit in Kasulu Primary Court. Aggrieved by the decision of the Primary Court the appellant appealed to the District Court and eventually to the High Court. The issue is whether the appellant is entitled to compensation for his labour.

Held: (i) A person is entitled to compensation for improvements effected on the land H provided that at the time of carrying out such improvements he had apparent jurisdiction for doing so;

(ii) the law in this country does not sanction seizure of an individual's property in the absence of any enabling written law and without adequate compensation. I

1988 TLR p157

CHIPETA J

Case Information

Appeal allowed. A

Cases referred to.

1. Ali Mangosongo v Chrispina Magenje [1977] LRT n. 8.
2. Lalata Msangawale v Henry Mwamlima [1979] LRT n. 3. B

[zJDz]Judgment

Chipeta, J.: In Kasulu Primary Court at Kasangezi, the appellant, Ntiyahela Boneka sued the respondents, Mutala Ujamaa Village, for shs. 14,000/= as compensation for his piece of land of ten acres which the respondents "nationalized" or unilaterally took over. The trial court unanimously found for the appellant but assessed the compensation at C Shs. 9,328/=. The respondents, however, successfully appealed to the District Court. Dissatisfied with the decision of the District Court, the appellant now appeals to this court.

The appellant's evidence, which was hardly disputed, was that in or about the year D 1974, during the movement of people into planned villages, the authorities measured 10 acres of virgin land and authorized the appellant to develop the same for his own use. The appellant cleared the bush, and by 1978, he had 477 banana trees and was also growing therein seasonal crops. E

In October, 1981, the respondents moved in the shamba and told the appellant to vacate because they had "nationalized" it on the ground of the newly drawn boundaries between Kisangezi

village (the appellant's) and the respondent's village, that is, Mutala village. When the appellant asked the respondents to compensate him for his labour, F they refused and told him to remove his crops from the shamba. It was then that the appellant filed this suit, and since then he has never entered that shamba.

A village secretary of Mutala Ujamaa village testified for the respondents at the trial. He stated: G

> Kwa kukiwakilisha Kijiji, nakubali shamba hilo ni la Mdai. Baadaye tulimtaifisha kutokana Kijiji kuwa ardhi yake. Tulimwitisha ang'oe migomba hiyo, akakataa. Natoa barua ya Katibu Tarafa kama ushahidi. Hivyo hatuwezi kulipa. H

He went on to add that the shamba has now been divided into plots which have been allocated to individuals.

On that evidence the trial court found as a fact that the appellant cleared the shamba I when the land was virgin and planted therein, inter alia, 477 banana trees; and that he cultivated the same for his

own needs for many years before he was unceremoniously evicted therefrom, for no A fault of his own. The trial court accordingly held that the appellant was entitled to compensation for his labour on that piece of land.

On appeal to the District Court, the learned senior district magistrate (as he then was) B appears to have accepted the findings of fact by the trial court, but he allowed the appeal on the ground that the appellant had failed to remove the banana trees when ordered to do so by the village authorities, that is the respondents.

On the evidence on record, there can be no dispute that the piece of land was lawfully C allocated to the appellant when it was virgin land for the appellant to develop it so as to meet his human needs. He did develop it and used it for many years to meet his needs. In other words, the appellant was at all material times in lawful occupation of that piece of land until the respondents seized it for no fault of the appellant. D

The question for consideration and decision in this case, therefore, is whether in those circumstances the appellant is entitled to compensation for his labour.

This important question is not a novel one. It has often exercised the minds of our E statesmen as well as our jurists. It moved the former Head of State, Mwalimu Julius K. Nyerere, to write, in his characteristic clarity:

> When I use my energy and talent to clear a piece of ground for my use, it is clear that I am F trying to transform this basic gift from God so that it can satisfy a human need. It is true, however, that this land is not mine, but the efforts made by me in clearing the land enable me to lay claim of ownership over the cleared piece of ground. But it is not really the land itself that G belongs to me but only the cleared ground which will remain mine as long as I continue to work it. By clearing that ground I have actually added to its value and have enabled it to be used to satisfy a human need. Whoever then takes this piece of ground must pay me for H adding

value to it through clearing it by my own labour. (Freedom and Unity/Uhuru na Umoja, at pages 53 -54). (Emphasis supplied).

This court itself has on many occasions reiterated that statement of principle. It has held I that a person is entitled to compensation for improvements effected on the land provided that at the time of carrying out such improvements, he had apparent

1988 TLR p159

CHIPETA J

justification for doing so. (See Alli Mangosongo v Chrispina Magenje [1977] LRT A n.8).

I feel I should buttress this point by referring, with respectful approval, to the case of Lalata Msangawale v Henry Mwamlima, [1979] LRT n. 3 a case which is almost on all fours with the instant case. That case involved a dispute over a piece of land between B an individual who had developed it from virgin land and a village authority which purported to lay claim to it. On appeal to this court, Mwesiumo, J., like myself, could not resist quoting the above-quoted passage and stated, at page 24: C

In the instant case the appellant had successfully proved before the trial court that he had occupied the land in dispute when the same was virgin and unoccupied. Therefore even if the villagers considered it expedient to grab that piece of land in order to enlarge the adjacent D shamba of the Wajamaa, the appellant, at the very minimum, was entitled to be paid compensation by those wajamaa who wanted to, and who in fact did, take his shamba and crops thereon.

With that statement of principle, I respectfully agree. In that case, Mwesiumo, J. E underscores the point by referring to the letter and spirit of the then Preamble to the Constitution and the TANU Creed (that case having been decided before the political and constitutional changes of 1977 and after).

I propose to underscore the point by referring to the Supreme Law of the Land-the F Constitution of the United Republic, 1977 as amended up to 1985. Subsection (2) of section 23 of the Constitution provides that every person is entitled to a just reward for his labour.

Section 24 (2) of the Constitution is even more to the point for purposes of this case. It provides a follows: G

(2) Without prejudice to subsection (1), it is unlawful for any person to have his property seized for the purposes of nationalization or for any other purpose without any written law providing for commensurate compensation therefor. (A free translation from the original Kiswahili text). H

That is the law, and the respondents, indeed, all those authorities in the position of the respondents, would do well to bear in mind those legal provisions in making decisions I regarding property of individuals which is lawfully owned. A strict adherence

1988 TLR p160

to those provisions by all concerned will promote peace and harmony in our Society and A will eschew a proliferation of such cases in our courts.

To sum up, the law in this country does not sanction seizure of an individual's property in the absence of any enabling written law and without adequate compensation. B

In the instant case, since the appellant was lawfully allocated virgin land which he later cleared and developed to a stage where it now satisfies human needs, he is entitled to adequate compensation for his labour from the respondents.
In the result, this appeal succeeds. The judgment of the District Court is accordingly set C aside and that of the Primary Court restored. The appellant shall have his costs in this court and both courts below.
D Appeal allowed.
1988 TLR p160
E
[zRPz]ZARUKI MBOKEMIZE v SWAIBU OMARI & FRANCIS ADOLPH 1988 TLR 160 (HC)

Court High Court of Tanzania - Bukoba
Judge Moshi J

1 September, 1988 F
Flynote
Land law - Disposal of land belonging to minors - Role of guardian.
Civil Practice and Procedure - Res judicata. G
-Headnote
On his death the father of the appellant left behind two farms; one for the appellant and another for appellant's brother. The appellant and his brother, being minors at the time, were left under the Guardianship of one Malifedha c/o Mbokemize. Appellant's brother, H while still a minor, sold his farm to respondents and the guardian successfully challenged the sale and she was allowed to redeem the farm by paying back the purchase price within three months. This she failed to do. Upon attaining the age of majority the appellant filed a suit in Primary Court which held that the same was res I judicata. On appeal to the District Court, that ruling was upheld. On further appeal to the High Court:
1988 TLR p161
MOSHI J
Held: (i) The issue of ownership of the land was finally and conclusively determined in an A earlier case. The farm was found to belong to appellant's brother who had sold the same to respondents;
(ii) upon failure by the guardian to redeem it, the farm became the property of the respondents.
Case Information
Appeal dismissed. B
No case referred to.
Rweyemamu, for respondents. C
[zJDz]Judgment

Moshi, J.: The appellant, Zaruki A. Mbekomize, was the unsuccessful party in a claim against both respondents, Swaibu Omari and Francis Adolf, for a shamba worth shs. 20,000/= at Katoro Primary Court. His appeal to Bukoba District Court was dismissed, D and hence this second appeal.

In this appeal, as was before the District Court, Mr. Rweyemamu, learned advocate, represented both respondents, whereas the appellant argued the appeal in person.

It was established in evidence before the Primary Court that the father of the appellant E died in 1973 leaving behind, among other property, two shambas - one for the appellant and the other for the appellant's brother, Mahmud Ahmed. The appellant's aunt, Malifedha d/o Mbekomize, was staying with, and guarding, the appellant, who was then F aged about 10 years, at the shamba left for the appellant.

On 15.12.75 Mahmud sold a portion of his shamba to the first respondent for shs. 2,000/=, and the remaining portion to the second respondent for shs. 4,500/=. Upon becoming aware of the sale, the aunt of the appellant, Malifedha, filed redemption G proceedings in Katoro Primary Court Civil Case No. 12 of 1977 on behalf of the minor children of the deceased and the clan.

On 17.5.78 the Primary Court, in that case, found the shamba in dispute to belong to Mahmud, and allowed Malifedha to redeem it within three months of that date by paying H back to the respondents the purchase price and their costs. No appeal was preferred against that decision. Malifedha, however, failed to redeem the shamba, and it then became and remained the property of the respondents. On 24th March, 1986 the appellant instituted these proceedings before the same Primary Court claiming the same I shamba from the respondents. On the evidence before it, the Primary Court

unanimously found the case to be res judicata, and this finding was upheld by the A District Court on first appeal.

I would, on the evidence, respectfully agree with the concurrent finding by both courts below that the case filed by the appellant against the respondents was res judicata. The B matter had come before the same Primary Court in 1977, and disposed of, after being instituted by the guardian of the appellant, Malifedha, on his behalf. The issue of the ownership of the land in dispute had been finally decided upon in that earlier case. It was found to belong to Mahmud, who had sold it to respondents, and upon failure by C Malifedha to redeem it on behalf of the appellant, the shamba became the property of the respondents. The present case, in my view, cannot be said to have been based on different rights or different principles of law from those involved in the earlier case. And even if it is assumed, without deciding, that the suit was not res judicata, there was no D evidence, apart from the appellant's bare assertion, that the land in dispute belonged to the appellant. He could not have known the issues involved as he was then of tender age. There was no evidence before the trial court that the appellant had inherited the shamba in dispute or had otherwise acquired it. The evidence established that it E belonged to Mahmud who then sold it to the respondents. In his memorandum of appeal the appellant has

more or less reiterated what he told both courts below, and which, in my considered opinion, was rightly rejected.
For the foregoing reasons, I find no merit in this second appeal which is, by reason F thereof, hereby dismissed with costs.
Appeal dismissed.
1988 TLR p163
A
[zRPz]COLONEL KASHIMIRI v NAGINDER SINGH MATHARU 1988 TLR 163 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Makame JJA, Kisanga JJA and Omar JJA

6 September, 1988 B
Flynote
Land Law - Double allocation - Procedure of allocation of land.
-Headnote
The respondent was allocated a piece of land by the Urban Planning Committee on 18th November, 1980 on condition that he pays the necessary fees within thirty days from C date of offer. He was delayed in paying the fees by the land officer who told him to wait until certain matters concerning resurvey of the surrounding areas were completed. Two months after the respondent was allocated the plot, the appellant was also allocated the same plot. The trial judge found that the respondent obtained the plot through approved channels and the late payment of fees by him was duly authorised. The appellant's D application, on the other hand, did not follow the proper procedures and was not approved by the Director for Land Development Services. E
Held: The plot was properly allocated to the respondent, and not to the appellant.
Case Information
Order accordingly. F
[zJDz]Judgment
Omar, Makame and Kisanga, JJ.A.: The appellant Col. S.M.A. Kashimiri is aggrieved by the decision of the High Court (Maina, J.) dismissing his petition against respondent Naginder Singh Matharu for vacant possession of a piece of land variously described as plot No. 17 Block "5" Keko Industrial Area and Plot No. 17 Chang'ombe G industrial Area. He is now appealing against that decision.
This is a case of double allocation of a parcel of land. Both parties to the suit were each allocated the same plot within a space of two months. Respondent was the first person H to be allocated on 28/11/80 after the Allocation Committee known by the name of Urban Planning Committee had sat on 18/11/80 and considered his application and approved his name as the new owner of the plot for a lease of 99 years. Respondent was required to pay the necessary fees for the plot

within thirty days from the date of this I offer of right of occupancy before the plot could be legally deemed to have

1988 TLR p164

OMAR JJA, MAKAME JJA AND KISANGA JJA

passed to him. Respondent, however, did not pay the fees until one year later for A reasons beyond his control. He was asked by the District Land Officer to delay payment of fees until certain matters as to resurvey of the surrounding area of this plot had been completed, matters which were expected to involve new boundaries of this plot with B consequent alteration of fees. So the respondent waited. In the meantime on 28/1/81 two months after the respondent had been allocated this plot, Plot 17 Chang'ombe Industrial Area, Dar es salaam the appellant Col. Kashimiri was also allocated the same plot. This time it was called Plot No. 17 Block 5 Keko Industrial Area, Dar es Salaam. C

We believe this is one and the same plot and none of the officials of the Ministry of Lands and the City Council who gave evidence had said otherwise. In fact if these were two different plots the parties to the suit would have gone their separate ways to develop their respective plots and no dispute would have arisen. D

The learned trial judge found that the respondent obtained this plot through approved channels and the late payment of fees by him was duly authorised whereas the plaintiff's application if there was any, did not pass through the allocation committee and therefore E he did not obtain this plot through the same laid down procedure as the other applicant. When the two documents of Right of Occupancy were before the Director for Land Development Services (DLDS) for his approval and signature before they could be sent for registration by the Registrar of Titles in the Land Registry, the DLDS F approved the document which bore the name of the respondent and rejected that of the appellant. In other words he disregarded the claim of the appellant to title of the land and upheld that of the respondent and so the respondent obtained his certificate of title to this piece of land.

In order to satisfy ourselves as to the authenticity of this approved procedure of G allocation of plots which was given in the testimony of land officers, we went through circulars of the then Ministry of Lands, Housing and Urban Development and came across this one circular No. NLUUD-C-1133/11/23 dated 13.11.78 signed by the H Principal Secretary one Joshua Daniel Minja which is titled "Plot Allocation". The circular does lay down the procedure referred to above for plot allocation and warns that any infringement of it will be visited by the cancellation of certificate of title so obtained. It in effect directs that all applications for allocation of plots must pass through I the allocation committee; in the cities there will be urban planning committees and in other areas there will be

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other committees - all specified. The circular warns that no individual A

land officer, be he a city land officer or a district land officer or even DLDS, would be allowed to allocate a plot himself and any such allocation will not be recognised as valid by the Ministry of Lands.

We accept this procedure of the Ministry of Lands as valid and sound. It is geared to avoid the confusion and embarrassment emanating from the practice of multiple B allocation of the same plot to various people.
We accordingly find that this plot was properly allocated to the respondent but not to the appellant. C
Appeal dismissed.
1988 TLR p165
D
[zRPz]REPUBLIC v FIDELIS JOHN 1988 TLR 165 (HC)

Court High Court of Tanzania - Arusha
Judge Munuo J

13 September, 1988 E
Flynote
Criminal law - Revision - Prohibition of imprisonment of young persons - Children and Young Persons Ordinance, Cap. 13.
-Headnote
The accused was convicted on his own plea of guilty for escaping from lawful custody F and was sentenced to six months imprisonment and six strokes of the cane. He was below the age of 16 years. On revision:
Held: (i) No young person below the age of 16 years should be sentenced to G imprisonment if there are other methods of dealing with him;
(ii) the trial court had no legal justification to sentence the accused to imprisonment.
Case Information
Order accordingly. H
No case referred to.
[zJDz]Judgment
Munuo, J.: The accused Fidelis John was charged in the District Court at Moshi with Criminal Case No. 346 of 1988 with the offence of escaping from lawful custody c/s I 116 of the Penal
1988 TLR p166
MUNUO J
Code. He pleaded guilty to the charge whereupon he was convicted and sentenced to 6 A months imprisonment and 6 strokes of the cane.
The charge sheet in the record of the trial court shows the age of the accused as fifteen years. The doctor's report Ref. E.4/1 dated the 27.8.1988 states that the accused is aged between 13 and 14 years. In the circumstances the accused is a young person B under the Children and Young Persons Ordinance, Cap. 13 of the Revised Laws of Tanzania.
The interpretation section of the said Ordinace defines young person as follows: C

young person means a person who is twelve years of age or upwards and under the age of sixteen years. D

The accused falls in the category of young persons as defined above because he is about 14 years of age.

Under section 22(2) of the Children and Young Persons Ordinance no young person shall be sentenced to imprisonment if there are other methods of legally dealing with the juvenile offender. The material section states: E

22(2) No young person shall be sentenced to imprisonment unless the court considers that none of the other methods in which the case may be legally dealt with by the provisions of this or any other Ordinance is suitable. F

Alternative punishments for juvenile offenders include probation under section 18, absolute discharge, repatriation or committal to an approved school under sections 23 and 24 of the said Ordinance. G

The trial court had no legal justification to sentence the accused to 6 months imprisonment in the present case. The trial court ought to have resorted to the alternative forms of punishment provided for juvenile offenders. Accordingly the sentence of 6 months imprisonment is quashed and set aside. The accused is to be set at liberty H forthwith unless otherwise held for other lawful cause. The 6 strokes of the cane imposed on the accused meet the justice of the case.

I Order accordingly.

1988 TLR p167

A

[zRPz]ABDUL SADIKI v WILFRED RUTAKUNIKWA 1988 TLR 167 (HC)

Court High Court of Tanzania - Mwanza

Judge Moshi J

19 September, 1988

Flynote

Administration of Estates - Inheritance - A will by an illiterate person - Conditions for validity B thereof.

-Headnote

Upon death of one Miria Nsheke, the respondent presented to the administrator of her estate a will purportedly executed by the deceased, who was illiterate, witnessed by two C clan members and two non-clan members.

Later, the appellant too came up with yet another will purportedly executed by the deceased and witnessed by two clan members and one non-clan member.

Held: Rules 19 and 21 of the Local Customary Law (Declaration) (No. 4) Order of D 1963 clearly provide that if a testator is illiterate, a will executed by him must be attested by a minimum of two clan members and two non-clan members. As the testator in this instance was illiterate, the will presented by the appellant was not properly attested. E

Case Information
Appeal dismissed.
Katabalwa, for appendant F
[zJDz]Judgment
Moshi, J.: The appellant, Abdul Sadiki, was the unsuccessful party in Bukoba Urban Primary Court Civil Case No. 15 of 1987. The subject matter of the claim was a shamba which the respondent, Wilfred Rutakinikwa, established to have inherited from G one Miria Nsheke. The appellant's appeal was dismissed by the Bukoba district court, and hence this second appeal.
It was established in evidence before the Primary Court that Miria Nsheke was the grandmother of the appellant, whereas the husband of Miria was the uncle (baba H mdogo) of the respondent. The husband of Miria died without issue, and the respondent, who was staying with them, thought that he had a better title to their shamba, which is the shamba in dispute, than Miria. He filed a suit against Miria claiming the shamba which culminated in High Court (PC) Civil Appeal No. 97 of 1973. The I decision of the High Court was that the shamba in dispute was not clan land and that it was the
1988 TLR p168
MOSHI J
sole property of Miria who could dispose of it in any manner she liked. A
Upon the death of Miria on 13/10/86 the respondent presented to a purported head of clan and administrator of the estate of Miria, Laurean Rugonzibwa (PW2) a Wili (Ext G) B dated 29.9.86 in which Miria had bequeathed the shamba in dispute to the respondent, Miria was an illiterate woman, and Ext G bore her thumb-print as well as two signatures of clan membes and two signatures of non-clan membes. PW2 allegedly refused to accept the Will (Ext G). It would appear that no other Will was declared or presented at that time. The appellant was at that time staying with Miria. The respondent C was in charge of and supervised, the funeral arrangements.
When the mourning period came to an end on 30.11.86, the clan members and the villagers met (Matanga) to devide the property of Miria. The shamba in dispute was D entrusted to the respondent, and he was placed in possession thereof. It was in writing (Ext. J), and all the clan members - Banyaruganda wa ukoo and the villagers participated. It would then appear that the appellant, spearheaded by PW2, came up with, and presented, another Will (Ext C) allegedly executed by Miria on 17.8.86 in E which the shamba in dispute was bequeathed to the appellant. The Will (Ext C) bore two signatures of clan members and one signature of non-clan members, and the thumb-print of Miria appeared below the signatures of the witnesses. The two Wills then gave rise to these proceedings.
In a well reasoned judgment, the Primary Court found the Will (Ect C) presented by the F appellant to be invalid mainly on the ground, among others, that it was not in conformity with Rules 19 and 21 of the Third Schedule to the Local Customary Law (Declaration) (No. 4) Order, 1963 - G.N. 436/63. Miria had been illiterate, and the Will did not have two non-clan members as its signatories. It only had one non-clan member G signatory. Furthermore, the purported thumb-print of Miria on the Will came after, and not before, the signatures of the signatories.

The same court found the Will (Ext G) presented by the respondent to be in conformity in all respect to Rules 19 and 21 of G.N. 436/63, and therefore valid, and declared the respondent to be the lawful occupier H of the shamba in dispute. These findings were upheld by the district court on first appeal, and the appellant has now come to this court.

In his submission before me, Mr. Katabalwa, learned advocate, stated that both courts below erred in holding Ext C to be invalid as the irregularities in connection therewith I were, according to him, minor. With a genuine respect to the learned advocate, I find no

1988 TLR p169

MOSHI J

substance in that argument. The law governing the subject of Wills as proclaimed under A the Local Customary Law (Declaration) (No. 4) Order of 1963 is clear and unambiguous. If a testator is illiterate, a Will executed by him must be attested by a minimum of two clan members and two non-clan members. Miria was illiterate, and Ext C was not thus attested. This could not have been a minor irregularity under my B consideration. The irregularity was, in my view, very material in that it offended the provisions of the relevant law, and thus puts to question the validity of Ext C. In my view, the findings that Ext C was invalid, and Ext G was valid, could not, on the evidence, be faulted. Ext C was not in conformity with the law. It was not presented or C made known immediately upon the death of Miria. It was not read at the burial. Ext G was confirmed by the clan members meeting of 30.11.86 when they put the respondent into the possession of the shamba in dispute in writing (Ext H.). I am satisfied, as were both courts below, that, on the evidence, Ext. C was an invalid Will, and Ext G was the D valid Will. A view is expressed in the memorandum of appeal that a proper suit ought to have been one for an application by either party for letters of administration. In my view, this would have been an irrelevant consideration for purposes of this suit. Miria did E not die intestate. She had left a Will (Ext G), found to be valid, which clearly stated who was to get what of the properties of the deceased Miria. The respondent was clearly justified to sue for his share in the estate of Miria on the basis of Ext G - a move which was in conformity with what the clan members had earlier sanctioned in its meeting F of November, 1986. On the facts, and on the law, I am satisfied, as was the trial court, that the respondent is the lawful possessor of the land in dispute. He should not be disturbed.

For the foregoing reasons, I find no merit in this second appeal, which is hereby dismissed with costs. G

Appeal dismissed.

1988 TLR p170

A

[zRPz]ZUFFER KAMARALI v YUNUS ELIAS 1988 TLR 170 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Kisanga JA

22 September, 1988

Flynote

Court of Appeal Rules - No specific rule for withdrawing a notice of motion - Invoking B provisions of Rule 3.

-Headnote

The advocate for appellant had filed a notice of motion asking the court for an order of stay of execution of judgment in Arusha High Court Civil Appeal No. 39 of 1987 C pending appeal to the Court of Appeal. On the day set for hearing the notice of motion, the advocate for the appellant filed another application to withdraw his Notice of Appeal. He argued that although there was no rule under the Court of Appeal Rules which specifically provided for withdrawal of Notice of Appeal in civil matters, the Court D could grant the application under rule 3(1) and (2)(a) of the Rules.

Held: Where the appellant no longer wishes to proceed with his intended appeal, he should be allowed to withdraw the notice of appeal. E

Case Information

Order accordingly.

No case referred to.

D'souza, for the applicant. F

[zJDz]Judgment

Kisanga, J.A.: Mr. D'Souza, the advocate for the applicant, had filed a notice of motion (Civil Application No. 5 of 1987 - Zuffer Kamarali v Yunus Elias) asking this G Court for an order of stay of execution of judgment in the Arusha High Court. Notice of the intended appeal was duly given before the filing of the notice of motion.

On the day set for hearing the notice of motion, however, Mr. D'Souza had filed yet H another application to withdraw his notice of appeal. Arguing in support of the latter application, he stated that there was no rule under the Court of Appeal Rules which specifically provided for withdrawal of notice of appeal in civil matters, but submitted that the Court would be entitled to grant the application under r. 3(1) and (2)(a) of the I Rules. The relevant parts of that rule say:

1988 TLR p171

KISANGA JA

(1) The practice and procedure of the court in connection with appeals and intended A appeals from the High Court, and the practice and procedure of the High Court in connection with appeals to the Court shall be as prescribed in these Rules, but the Court may at any time, direct a departure from these Rules in any case in which this is required in the interests of Justice. B

(2) Where it is necessary to make an order for the purposes of

(a) dealing with any matter for which no provision is made by these Rules or any other written law; C

(b) ....

(c) .....

the Court may, on application or on its own motion, give directions as to the procedure to be adopted or make any other order when it considers necessary. D

Like Mr. D'Souza, I have not been able to discover any rule in the Court of Appeal Rules which specifically allows the withdrawal of a notice of appeal in civil matters. The nearest provision I could find is r. 95(1) which allows an appellant to withdraw his E appeal any time after instituting the appeal but before it is called on for hearing. However, it is apparent that that subrule could not apply here because no appeal has been instituted in terms of r. 83. Nor could I make an order in terms of r. 84 (a) to the effect that Mr. D'Souza is deemed to have withdrawn his notice of appeal because Mr. F D'Souza assures me that the specified period for instituting the appeal has not run out in that the Deputy Registrar has not yet supplied him with a copy of the proceeding which Mr. D'Souza applied for.

Yet I think it would be unfair to deny an appellant the right to withdraw his notice of G appeal. To do that would amount to holding the appellant to the appeal against his wish. That would not make sense, nor would it be just. In the circumstances I am inclined to Mr. D'Souza's view that this is a fit case in which to invoke the provisions of r.3 as set out above. In so doing I take the view that it is fair that where for one reason or another H appellant no longer wishes to proceed with his intended appeal, he should be allowed to withdraw the notice of appeal. It should be borne in mind that it is the appellant himself who freely and voluntarily decided to file the notice of appeal; it is only just that I he should be equally free to withdraw that notice. This view would be in harmony with the

provisions of r. 95(1) which, as stated above, permits an appellant to withdraw his A appeal after instituting it but before it is called on for hearing. For, it would sound almost absurd to say that a party cannot withdraw a mere notice of appeal but that he can withdraw after he has done much more in the matter by taking steps to institute the appeal itself. B

For these reasons I grant the application and order that the notice of appeal filed in respect of the Arusha High Court Civil Appeal No. 39 fo 1987 be marked withdrawn. With that, the notice of motion in Civil Application No. 5 of 1987 to this Court for stay of execution pending appeal is also marked withdrawn. C

Order accordingly.

D

[zRPz]NICOLAUS KOMBA v KONDRAD KOMBA 1988 TLR 172 (HC)

Court High Court of Tanzania - Songea
Judge Kazimoto J

7 October, 1988 E

Flynote

Land law - Disposition of clan land - Requisite consent. F

-Headnote

Parties to the suit were members of the same clan. The respondent sold his piece of land to non-clan members without prior approval of other clan members. Clan members had expressed willingness to buy the land in dispute. The trial court (Primary Court) G unanimously found for the appellant. On appeal to the District Court, the appellate Court held that despite the fact that the land in dispute was clan land, the respondent had all the right to dispose of his house and all plants which were in the clan land.

Held: (i) Clan land cannot he sold to non-clan members without prior approval of H other clan members. The respondent had no right to sell clan land to a non-clan member without clan members consent;

(ii) where there are clan members who are ready and willing to buy clan land, I such land should be sold to them.

1988 TLR p173

KAZIMOTO J

Obiter: Magistrates should be careful in keeping record of proceedings. A

[zJDz]Judgment

Kazimoto, J.: This is an appeal against the decision and judgment of Mbinga District Court Civil Appeal No. 59/87 which overrulled the decision of Mkumbi Primary Court B in Civil Case No. 24/87. The parties in the Primary Court were the appellant and the respondent in this appeal.

Briefly the appellant and the respondent are members of the same clan. Both own clan land. The respondent sold clan land to a third party, that is, to a non-clan member. C Efforts by the appellant and the respondent's father to prevent the sale had failed despite the members of the clan's willingness to buy the land in dispute. The trial court unanimously found in favour of the appellant.

In allowing the appeal in favour of the respondent the District Court, although conceding that the land belonged to the clan, held nevertheless that the respondent had all the right D to dispose of his house and all plants which were in the clan land.

In my considered view the learned senior district magistrate erred in this. Clan land cannot be sold to non-clan members without the prior approval of the clan members. In E this case there was clear evidence that the members of the parties' clan had resisted the sale. They arranged a meeting and PW2 stated in his evidence that the respondent demanded shs.50,000/= and that he agreed to pay the amount and on the following day he took shs.35,000/= with him to give to the respondent. He said also that the F respondent did not appear and later he demanded shs.70,000/= and then shs150,000/=. The respondent did not dispute this evidence. The decision of the district court is perverse the evidence at the trial. Clearly PW2 was prepared to buy off the respondent and the respondent kept on vacillating in his demands which were clearly unreasonable G under the circumstances of the case. I therefore hold that the respondent had no right to sell clan land to a non clan - member without the prior consent which, in this case, has been withheld.

In its judgment the trial court held that the respondent can sell the permanent trees which H can be harvested and leave the land to the clan members. It be noted that the respondent had a

house on the clan land. In my judgment the house and permanent crops on the land can only be sold to clan members and in the event of their failure to do so or inability to purchase the same only then can the respondent sell the property and the land to non-clan member. As stated above the members of the clan were prepared I to pay for the
1988 TLR p174
land but the respondent kept on changing the price. It cannot be said that the clan A members were unable to buy the land in dispute. This right which the respondent had in this case was to sell land to the clan members. This disposes the appeal.
One thing concerning the record must be stated. I have stated above that the parties in B Mkumbi Primary Court civil case No. 25 of 1987 were Nikolaus Komba and Kondrad Komba. In Mbinga Civil Appeal No. 59 of 1987 the parties were Kondrad Komba and Nikolaus Komba. The copy of judgment accompanying the memorandum of appeal shows that the parties in the District Court Civil Appeal No. 59/87 were Condrad C Komba and Nikodem Komba. This Nikodem Komba does not appear to be a party in these proceedings either at the trial or the District Court. Both appellants and respondent have assured the court that this case does not concern Nikodem Komba and that he is unknown to them. The judgment had been certified as a true copy of the judgment. It D now turns out to be untrue copy of the judgment. This underscores the need to be careful. Had the learned senior district magistrate exercised a bit of a diligence he would not have failed to notice that Nikodemu Komba was not a party in the appeal before him. That was for the record. E
As I have said the decision of the District Court was against the weight of the evidence at the trial and that the respondent had no right to sell clan land to a non clan member in the circumstances of this case. The decision of the District Court cannot be supported. F
In the result I allow the appeal with costs, set aside the judgment of the District Court and would uphold the judgment of the trial court which is affirmed.
G Appeal allowed.
1988 TLR p174
H
[zRPz]BUHIMILA MAPEMBE v REPUBLIC 1988 TLR 174 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

13 October, 1988
Flynote
Criminal Practice and Procedure - Plea - Accused pleads and states "It is true" - Whether I the plea amounts to a plea of guilty.
1988 TLR p175
CHIPETA J
-Headnote

The appellant was charged with and convicted, purportedly on his own plea of guilty, of A the offence of being in possession of Government Trophy, to wit, a lion skin contrary to Paragraph 16(b) of the First Schedule to and sections 56(1) and 59(2) of the Economic and Organised Crime Control Act read together with sections 67(1) and (2) (a) and (g) of the Wildlife Conservation Act. When the charge was read over and B explained to the accused, he was asked to plead and he said "It is true", and on being briefed of the facts he said "the facts are correct." The court entered a plea of guilty and convicted. He appealed to the High Court against the conviction arguing that the plea was equivocal. C

Held: (i) In any case in which a conviction is likely to proceed on a plea of guilty, it is most desirable not only that every constituent of the charge should be explained to the accused but that he should be required to admit or deny every element of it unequivocally; D

(ii)The words "it is true" when used by an accused person may not necessarily amount to a plea of guilty, particulary where the offence is a technical one;

(iii) in the present case, the facts given by the public prosecutor cannot be reasonably said to have amounted to full disclosure of the ingredients or elements of the E offence, rather they appear to be more of an allegation that the appellant had possession of the lion skin;

(iv) where the offence charged is rather technical and the accused is unrepresented, it is desirable that the technical words be adequately explained to the F accused before he is asked to plead thereto.

Case Information

Appeal allowed.

Cases refer to: G

1. Kato v R. [1971] HCD 297
2. Yonasani Egalu and Others v Republic 9 EACA 65
3. Hando Akunaay v R. 18 EACA 307
4. Sebastian Mpaka v R. [1975] LRT 28 H
5. Desai v R. [1971] HCD 297

Mr. Kwikwima for the appellant

[zJDz]Judgment

Chipeta, J.: The appellant Buhimila Mapembe, was charged with and convicted, I purportedly on his own plea of guilty, of the

1988 TLR p176

CHIPETA J

offence of being in possession of Government Trophy contrary to paragraph 16(b) of the A First Scheduled to and sections 56 (1) and 59(2) of the Economic and Organized Crime Control Act No. 13 of 1984 read together with sections 67(1) and (2) (a) and (2) of the Wildlife Conservation Act No. 12 of 1974.

The Republic alleged that on or about 22nd March, 1986 the appellant was found in B "unlawful possession" of a Government Trophy, to wit, one lion skin valued at Shs. 5,000/=.

As to what transpired during the trial, I will let the trial court's record speak for itself: C

2/10/87

Coram: A.E.A. Msigwa R.M.
Pros: Assistant Inspector Saidi
C.C. Isemalya
Accused: Present D
Charge read over and explained to the accused who is asked to plead.
PLEA: "It is true" E
Court: Entered as P.G.

Sd.
R.M.

P.P. The facts are as per charge sheet. The accused was arrested on 12/3/87 at 4.00 am. He F was found with one lion skin, Exh. P.A.

Sd.
R.M.
G 2/10/87

Accused: The facts are correct.
Court:I convict the accused on his own plea of guilty

H Sd.
R.M.
2/10/87

The appellant was then sentenced to ten (10) years imprisonment.

During the hearing of this appeal, Mr. Kwikima, for the appellant submitted that the I appellant's plea was equivocal in that

1988 TLR p177
CHIPETA J

the words "unlawful possession" were not explained to the appellant, and that had the A court asked the appellant if he had a permit to possess the lion skin he would have produced one. Indeed, as it turned out, the appellant does possess a permit in respect of the lion skin duly issued by an administrative Officer, Shinyanga as per Exchequer Receipt No. 867197 dated 15/1/86. B

There is ample authority for the proposition that the words "It is true" when used by an accused person may not necessarily amount to a plea of guilty, particularly where the offence is a technical one, (See Kato v R. [1971] H.C. & 364). It is the duty of a trial court in such a case to search mind that before entering a conviction on any such plea, it C is highly desirable not only that every constituent of the charge should be explained to the accused, but that he should be required to admit or deny every constituent. (See Desai v R. [1971] H.C.D. 297). In the words of the Court of Appeal for Eastern Africa D in the case of Yonasani Egalu and Others v R.; 9 E.A.C.A. 65 at page 67:

In any case in which a conviction is likely to proceed on a plea of guilty ... it is most desirable not only that every constituent of the charge should be explained to the accused but that he E should be required to admit or deny every element of it unequivocally.

(See also Hando Akunaay v R., 18 E.A.C.A. 307). F

If, however, the words used by an accused person may, per se, appear to be an unequivocal plea of guilty, a conviction may properly be entered against him if the facts given by the prosecutor and agreed to as correct by the accused fully disclose the offence charged. (See Sebastian Mpaka v R., [1975] LRTn, 28). G

In the present case, the appellant's words - "It is true" while indicating that the appellant was making an admission, did not constitute an unequivocal plea. The facts given by the public prosecutor cannot reasonably be said to amount to a full disclosure of the ingredients or elements of the offence charged. The facts appear to me to have H amounted to an allegation that the appellant had possession of the lion skin.

It is true that by adopting the particulars of the charge, the public prosecutor had, in effect, alleged that the possession was "unlawful". But bearing in mind the fact that the I offence is rather technical, and that the appellant was unrepresented, the words

unlawful possession" ought to have been explained to the appellant by a question such A as, "Do you have a permit or other authority to possess this lion skin?" If that had been done, the appellant would readily have produced the exchequer receipt. Clearly, therefore, the appellant did not understand what he was admitting. It follows, therefore, B that the appellant's plea was equivocal, and so the conviction was bad.

Had all things been equal, I would have ordered a retrial. But the facts disclosed amply demonstrate that the appellant's possession of the lion skin was, at the time of his arrest, lawful.

In the result, this appeal succeeds. The appellant's conviction is accordingly hereby C quashed and sentence set aside. The appellant shall be released from custody forthwith unless otherwise lawfully detained. The order of forfeiture is also set aside and it is hereby ordered that the lion skin be restored to the appellant forthwith.

D Appeal allowed.

E

[zRPz]MPANDA DISTRICT COUNCIL v YEKONIA NGILIYE 1988 TLR 178 (HC)

Court High Court of Tanzania - Mbeya
Judge Mwaikasu J

14 October, 1988

Flynote

Civil Practice and Procedure - Locus standi -State attorney appearing on behalf of a local F government authority in a civil case - Whether state attorney has locus standi

-Headnote

The Attorney-General Chambers offered the services of a state attorney stationed at G Mbeya to the Mpanda District Council, a local government authority, in respect of a civil suit. When

the case came up for hearing a preliminary point was raised questioning the locus standi of the state attorney in the case.

Held: (i) Under section 100 of the Local Government (Urban Authority) Act, 1982 H representation of urban authorities by any of their officers in legal proceedings is subject to the several instructions given by the Attorney General. The Attorney General has the power to stop any of the authority's intended legal representative and take up the I representation himself, personally or by any other legal officer under him;

1988 TLR p179

MWAIKASU J

(ii) [Obiter] the omission in the Local Government (District Authorities) Act, A 1982 to clothe the Attorney General with the powers akin to those vested upon him under section 100 of the Local Government (Urban Authorities) Act, 1982 was a mere oversight by the Parliamentary Draftsmen. For had it been intended to have a different system of representation for District Authorities that would have been clearly stated. B

Case Information

Order accordingly.

Case referred to. C

1. Chief Nehemia Gotonga v Stephen Kinyanjui [1959] EA 1096 (C.A.).

Bateyunga for the defendant D

[zJDz]Judgment

Mwaikasu, J.: In this suit, Mpanda District Council, a Local Government Authority, established under Act No. 7 of 1982, sues the Defendant one Yekonia Ngiliye upon a contract to supply 600,000 burnt bricks.

The Council has sought for and has been offered the services of a State Attorney, an E officer of the Attorney General Chambers, stationed at Mbeya; to prosecute its claim. The defendant is defended by Mr. Bateyunga, learned advocate.

When the case came up for hearing on 13/10/88, Mr. Bateyunga, raised a preliminary F point of objection; contending that, while the learned State Attorney, was under the Advocates Ordinance Cap. 341, clearly an advocate for the government of the United Republic in both criminal and civil matters affecting the government as such, it was doubtful as to whether, such role of the State Attorney also extended to defending G corporate public bodies as the Mpanda District Council in civil matters; arguing that as such corporate body, the Council had been conferred with its own legal entity with power to sue and be sued and that in defending its interests in civil matters it had to use its own lawyers employed by it either on temporary terms or permanent terms. For this H reason the learned State Attorney was considered to have no locus standi.

Mr. Mbise, for his part maintained that as a legal officer in the Attorney General's Chambers, representing the Attorney General he was entitled to appear before this court I and defend the plaintiff Council because the Attorney General was, in law, empowered to

1988 TLR p180

MWAIKASU J

appear to provide legal defence services to all Ministries, departments and institutions A that are directly under the government of the United Republic when the interests of the government of the United Republic were to be protected.

In this case he felt that the government of the United Republic had its financial interests at B stake as it was the provider of substantial sums for the carrying out of development projects by the Council. And that as evidence of such interest by the government of the United Republic, the Regional Commissioner had direct control over the funds of Local Government Authorities within his region and the accounts of such Authorities have to be C audited by the controller and Auditor General. He added that unlike most Urban Authorities, the District Council had no legal officer of its own and did not have provision for engaging one.

That is clearly evidenced by the fact that unlike the clear provision under s.100 of the D Local Government (Urban Authorities) Act No. 8 of 1992, relating to appearance of an Urban Authority in legal proceedings, no similar provision is to be found under the Local Government (District Authorities) Act No. 7 of 1982, under which Mpanda District E Council was established, hence the need for legal representation by the Attorney General's legal personnel. It is also interesting to note that under s.100 of the Local Government (Urban Authorities) Act 1982, even the representative of such Urban Authorities by any of their officers as provided there under is subjected to general institutions given by the Attorney Geneal.

Now as to the standing of the legal officers of the Attorney General's Chambers, in the F legal profession that is clearly laid down under S.3(1) (2) (a) of the Advocates Ordinance Cap. 341. It is there provided as follows:

3-(1) Every officer to whom this secion applies shall, in connection with the duties of this office, G be entitled to practise as an advocate in the High Court or in any court subordinate thereto constituted under the subordinate court's ordinance (now Magistrates Court Act 1984) and to perform any of the functions which in England may be performed by a member of the Bar as H such or by a solicitor of the supreme court of Judicature as such and shall not except as in this ordinance expressly provided, be subject to the provisions of this ordinance.

(2) The officers to whom this section applies are- I

1988 TLR p181

MWAIKASU J

(a) The Attorney General, Parliamentary Draftsmen, and State Attorney, and any A person duly qualified holding office in the Attorney General's Chambers;

There is no doubt that though a body corporate, a District Concil has very close links B with the central government. This is clearly evidence by the close financial and administrative controls exercised by the central government of the United Republic over the financial and administrative affairs of all Local Government Authorities, both Urban and District Authorities. C

The issue is whether a State Attorney can legally be said to have audience before this court while representing a Local Government Authority as the case in the instant case.

I answer such question in the positive. I say so with much confidence upon reading first, the provision of s.100 of the Local Government (Urban Authorities) Act 1982. It is D under such

section that whatever representation an Urban Authority may have in a legal proceedings that would have to be subject to general instructions from the Attorney General. That means that in such situation the Attorney General will have the liberty to stop any of the Authority's intended legal representative and take up the representation E himself, personally or by any other legal officer under him. I cannot imagine that the Attorney General having been clothed with such powers in respect of Urban Authorities, he is denied of similar powers in respect of legal representation for District Authorities. I F take the omission to have similar provision under the Local Government (District Authorities) Act No. 7 of 1982 as a mere oversight by the Parliamentary Draftsmen. For had it been intended to have a different system of representation for District Authorities it would have been so clearly stated. G

Secondly experience is not lacking. For the case of Chief Nehemia Otonga v Stephen Kinyanjui [1959] E.A. 1096 (C.A.) which originates from Kenya is very much to the point as it had to tackle a similar problem.

In that case the appellant was a Chief of the Chania Location, in the Republic of Kenya, H then a British colony. By virtue of s.5 of the Native Authority Ordinance (Cap. 97) it was the duty of every chief to maintain order in the area in respect of which he was appointed and for that purpose he was vested with certain powers under the Ordinance. The action from which this appeal to the Court of Appeal was preferred and in which I judgment had been given

against the appellant as the defendant, related to the use by the appellant of a motor A truck belonging to the respondent on four occasions, in order to provide him transport for his duties as chief, and for use in certain matters related to the emergency. Counsel for the respondent took, among other things, a preliminary objection that Mr. Rumbold, B then crown counsel, was incompetent to appear on behalf of the appellant.

Dealing with such objection their Lordships, on the authority of a number of English cases held inter alia that it is within the administrative discretion of the Attorney General C to decide whether it is in the interest of the crown (the Republic in our case) that a particular litigant should be provided with legal representation and once the decision had been taken to provide the appellant with counsel, it was within the scope of crown counsel's official duties to appear on his behalf.

Now substituting our State Attorney for crown counsel, it goes without saying that D having been decided by the Attorney General to represent the plaintiff, Mpanda District Council, Mr. Mbise, learned State Attorney, has undented locus standi in this suit. He is therefore entitled to prosecute this suit as it is within the scope of his official duties. E

Order accordingly.

F

[zRPz]JUMA MUSHI v REPUBLIC 1988 TLR 182 (HC)

Court High Court of Tanzania - Songea
Judge Kazimoto J

17 October, 1988 G

Flynote

Criminal Practice and Procedure - Judgment - Neither dated nor signed - Whether trial a nullity. H

Criminal Practice and Procedure - Sentencing - Stealing by agent - Property stolen does not belong to a specified authority - Accused admitted previous conviction - Accused sentenced to minimum sentence under Minimum Sentences Act - Non-scheduled offence - Sentence improper. I

1988 TLR p183

KAZIMOTO J

-Headnote

The appellant was convicted in the District Court of Songea of theft by agent c/s 273(b) A of the Penal Code and sentenced to five years imprisonment under the Minimum Sentences Act, 1972. It was common ground that the judgment of the District Court was neither dated nor signed as required by section 312(1) of the Criminal Procedure Act. The learned State Attorney submitted for the Republic that as a result of that B omission the trial became a nullity and prayed for an order to quash the proceedings and a trial de novo. It was also common ground that the offence of which the appellant was convicted was not a scheduled offence and furthermore, the appellant had a previous conviction. C

Held: (i) An omission of date and signature in a judgment can never occasion failure of justice. It is a mere irregularity which is curable under the provisions of section 388(1) of the Criminal Procedure Act, 1985; D

(ii) in sentencing the appellant under the Minimum Sentence Act, 1972 for the offence of stealing by agent c/s 273(h) of the Penal Code, the learned trial magistrate clearly erred. That is not a scheduled offence and in any case the property does not belong to a specified authority within the meaning of the Act. Bearing in mind that the E appellant has previous conviction and his readiness to concede the sentence of five years imposed under the Minimum Sentences Act 1972 is set aside and the appellant is sentenced to three (3) years imprisonment for the offence charged. F

Case Information

Order accordingly.

Cases referred to.

1. Mugena and Another v R. [1967] EA 676
2. Kagoye s/o Bundala v R. [1959] EA 900 G
3. Willy John v R. [1953], 23 EACA 509
4. Desiderio Kawunya v Regina [1953] 20 EACA 281
5. Ilanda s/o Kasongo v R. [1960] EA 780

Kaduri, State Attorney, for the Republic. H

[zJDz]Judgment

Kazimoto, J.: The appellant has been convicted of theft by agent c/s 273(b) of the Penal Code and sentenced to five years imprisonment under the Minimum Sentences Act 1972. Being aggrieved he is appealing against both conviction and sentence imposed I against him.

1988 TLR p184

MWAIKASU J

Learned State Attorney had submitted that the trial is a nullity. He argued that the A judgment was not dated nor was it signed. He contended that the effect of not dating and signing the judgment is to render it null and void and he relied on the case of Mugena and another v R. [1967] EA 676. He prayed for an order to quash the proceedings and for a fresh trial. Section 312(1) CPA provides: B

Every judgment under the provisions of section 311 shall, except as otherwise expressly provided by this Act, be written by, or reduced to writing under the personal directions and C superitendance of the presiding judge or magistrate in the language of court, and shall contain the point or points for determination, the decision thereon and the reasons for the decision, and shall be dated and signed by such presiding officer as of the date on which it is pronounced in open court. D

A perusal of the judgment shows clearly that it was not signed nor was it dated. The magistrate ought to have signed and dated the judgment after he had convicted the appellant. This was not done and this amounted to non-compliance with section 312(1) CPA. The issue is whether failure to sign and date a judgment renders the trial a nullity or E a mere irregularity.

First we have to look at the provisions of section 388 of the Criminal Procedure Act. That section provides as follows:

388(1) Subject to the provisions hereinbefore contained no finding, sentence, or order made F or passed by a court of competent jurisdiction shall be reversed or altered on appeal or revision on account of any error, ommission, or irregularity in the complaint, summons, warrant, charge, proclamation, order, judgment or in any inquiry or other proceedings under G this Act, save that where on appeal or revision, the court is satisfied that such error, omission, or irregularity has in fact occasioned failure or justice, the court may order a retrial or make such other order as it may consider just and equitable. H

Mugema and another v R. [1967] EA 676 which learned state attorney referred to is a decision of this court. In that case the accused were charged with assaulting a police officer in the due execution of his duty. After concluding hearing of the evidence, the I case was adjourned for judgment on 12th September 1966. On the file of the court proceedings there was an undated and unsigned judgment

1988 TLR p185

MWAIKASU J

which found the accused guilty and commitment warrants dated 14th September, 1966 A purporting to show that the accused were sentenced to twelve months imprisonment and to pay shs. 50/= compensation. Platt, J. held at page 678:

These omissions constitute gross irregularity and I am not prepared to cure them under s. B 346 of the Criminal Procedure Code .... In my view the whole trial is a nullity.

I respectfully disagree with the decision in Mugema's case that the mere omission to sign and date a judgment constitutes gross irregularity which cannot be cured by the C application of section 346 CPC and now section 387 CPA. I do not see how a judgment delivered in the presence of the accused, though undated and unsigned can occasion in fact a failure of justice to an accused person. It is an irregularity which does not go to the root of the content of a judgment and can never occasion a failure of D justice.

This was the view of the Court of Appeal for East Africa in the case of Kagoye s/o Bundala v R. [1959] EA 900. This was a murder case. In that case the judgment which was short ran as follows: E

The accused is charged with the murder of Maganga his son, on April 8, 1959 c/s 196 of the Penal Code. I have summarised the evidence in my charge to the assessors and there is no need to repeat it. They are both of the opinion that he is guilty and I fully agree. He is F accordingly convicted.

The Court of Appeal found that the provisions of section 171(1) of the CPC, which are similar to section 312(1) CPA were not complied with and had to decide whether the conviction was invalidated or whether it could hear and determine the appeal on its G merits. Referring to the decision of Willy John v R. (1953), 23 EACA 509 it said:

Failure to date and sign the judgment is a mere irregularity which can be cured by the H application of section 304 of the Criminal Procedure Code since the whole of the record of the proceedings is in the hand of the trial judge and there was no prejudice to the appellant. But the failure to comply with the other requirements of the section is fatal to the conviction. In I Desiderio Kawunya v Regina 20 EACA 281, this court held

1988 TLR p186

MWAIKASU J

that failure to comply with the provisions of s. 169(1) of the Uganda Criminal Procedure Code A which is similar in terms to s. 149(1) of the Seychelles Criminal procedure Code will not necessarily invalidate a conviction if there is sufficient material on the record to enable the Appeal Court to consider the appeal on merit. In this case there is clearly insufficient on record B to enable us to consider the appeal on the merit.

The same view was taken in the case of Ilanda s/o Kasongo v R. [1960] EA 780. C Retrial was ordered in each of these cases not because the judgments were not dated and signed but because the judgments did not contain the point or points for determination, the decision and the reasons for decision. There was therefore no sufficient material before the court of appeal to decide the cases on merit.

In the present case the learned resident magistrate had summarised the evidence for both D the prosecution and the defence and decided to convict the appellant as charged and had fully given his reasons as to why he believed the prosecution evidence and rejected the appellant's defence. There is in this case sufficient material to enable this court to E decide the appeal on merit. I would therefore hold that failure to sign and date a judgment is a curable irregularity under S. 388 C.P.A., and I have decided to cure the said irregularity by the invocation of section 388 C.P.A. which I do.

In his memorandum of appeal the appellant had stated that the learned trial resident F magistrate has erred in accepting the evidence of PW2 who had grudges against him. According to him PW2 had suspected him of having sexual relationship with PW2's wife and had confronted each other several times. With respect this allegation is not borne out by the evidence on record. PW2 was cross-examined by the appellant and because the G cross-examination was brief I propose to quote it:

xxd by the accused: Because he knows you he believed you. You did not mention the particular person you intended to go when you told us as you said that from 10.00 o'clock to H 6.00 o'clock you could be back.

How could the learned magistrate believe that PW2 suspected the appellant of having sexual intercourse with his (PW2's) wife and had confronted each other several times? The appellant should have asked PW2 specific questions on the alleged grudges and I only

then can the court decide to believe or reject the evidence of any particular witness. A Ground of appeal has no ring of truth around it and it is rejected.

In ground two and four of appeal the appellant has argued that he was denied the opportunity to call his defence witnesses. This is not true. At the close of the prosecution case the appellant, after being informed of his right, elected to give unsworn statement B and said he wished to call one witness from Kagera. After giving his statement from the dock then in his own words he said "The case can be closed. I have no need to call the witness." There is therefore no merit at all in the allegation, which is rejected, that he was C denied opportunity to call his defence witnesses.

The appellant then argued in ground 3 of appeal that on the material day he was 50 Km away from the village and thus he could not have been given the bicycle by the complainant. This is a defence of alibi. The learned trial magistrate effectively dealt with D this issue and stated that the appellant and PW1 and PW2 are familiar to one another, they live in the same village and there could be no mistake. It appears to me that the trial magistrate gave no weight to the defence of alibi. The appellant did not give notice of his intention to rely on an alibi either to the prosecution or to the court before the hearing of E his case during the trial nor did he give any particulars of his alibi before the case for the prosecution was closed. He decided to raise his defence after the close of the prosecution case. This is a contravention of section 194(4)(b) fo the C.P.A. The learned trial resident magistrate had correctly accorded no weight to that defence. That ground F also fails. With that I find no merit in the appeal against conviction which is dismissed.

The appellant was sentenced to five years imprisonment under the Minimum Sentences Act 1972. In sentencing the appellant under that Act for the offence of theft by agent c/s G 273(b) the learned trial magistrate has clearly erred. That is not a scheduled offence and in any case the property does not belong to a specified authority within the meaning of that Act. The appellant should have been sentenced under the provision of the Penal Code. I have considered whether the sentence of five years imprisonment is not exessive. The maximum penalty for the offence

charged is ten years. The prosecution H said that they had no previous record against the appellant who in turn stated that he is a convict. It is not known for what offence the appellant had been convicted. He has however stated in his defence that he is serving a sentence of three years imprisonment. I This case shows how lazy and lax the prosecution

1988 TLR p188

had been for they could easily have known that the appellant has a record of previous A conviction and would have stated the offence for which he was serving the three years sentence. That would have helped the court to meet out the appropriate sentence. On my part bearing in mind that the appellant has previous conviction and his readiness to concede I would set aside the sentence of five years imposed under the Minimum B Sentences Act 1972 and sentence the appellant to three (3) years imprisonment for the offence charged.

In the result, and to the extent of the variation of sentence, the appeal against sentence is also dismissed.

C Order accordingly.

1988 TLR p188

D

[zRPz]VILLAGE CHAIRMAN - K.C.U. MATEKA v ANTHONY HYERA 1988 TLR 188 (HC)

Court High Court of Tanzania - Songea
Judge Kazimoto J

17 October, 1988 E

Flynote

Land law - Land within jurisdiction of village government - Power of village chairman to re-allocate land.

Civil Practice and Procedure - Parties to suit - Claim for land within jurisdiction of village F government - Land allocated by village chairman - Village chairman sued - Whether village chairman or allocatee to be sued.

Civil Practice and Procedure - Plea of res judicata - Former proceedings quashed for lack of jurisdiction.

Civil Procedure - Plea of res judicata - Appellant not a party in former proceedings - G Whether plea of res judicata maintainable.

-Headnote

One Osmund Ndunguru had applied to Mateka village government for a piece of land to build and the appellant, through the village building committee, allocated him land, which H the respondent claimed to be his. The respondent instituted proceedings in Kigonsera Primary Court civil case no 59 of 1983 in which the respondent prevailed. Osmund Ndunguru appealed to the District Court of Mbinga in Civil Appeal No. 81 of 1983. I The District Court quashed the proceedings for lack of jurisdiction on the part of the trial court. The respondent sucessfully instituted, on the advice of

1988 TLR p189
the District Court, fresh proceedings in Myangayanga Primary Court jurisdiction to try A the suit, having against the appellant as chairman of Mateka Village.
The District Court of Mbinga upheld the findings of the Primary Court that the land which the appellant had allocated to one Osmund Ndunguru belonged to the respondent and held that the village government had no right to allocate developed land without the B prior consent of the owner.
Held: (i) The respondent was not consulted prior to the reallocation of the land by the appellant to Osmund Ndunguru. Common sense and equity forbid a village government C to allocate land within its jurisdiction which is under the possession of another villager who is developing it without the prior consent of the villager. A village government which allocated land which is already under development and in the possession of another person would not only bring lawlessness and anarchy to the villages but would also D retard the development of the villages;

(ii) the appellant as chairman allocated the land to Osmund Ndunguru who entered into the land under the authority of the appellant. Had he done so without authority Osmund Ndunguru would be liable to be sued for ejection. As the appellant is E the authority which allocated the land in dispute he cannot be heard to complain for being sued in court;

(iii) the proceedings in Kigonsera Primary Court civil case No. 59 of 1983 were quashed by the Mbinga District Court in Civil Appeal No. 81 of 1983. The effect of F quashing court proceedings is to put the parties in the same position as if there had never been any proceedings. Under the circumstances nothing has been finally decided;

(iv) one of the conditions for successful invocation of the plea of res judicata is G that the parties in the previous suit must be the same as in the subsequent suit. In Kigonsera Primary Court civil case No. 59 of 1983 and Mbinga District Court Civil No. 81 of 1983 the parties were Antony Hyera and Osmund Ndunguru. The appellant as chairman was not a party to these proceedings. The plea is therefore not maintanable in H law.
Case Information
Appeal dismissed.
Case referred to.

1. Lukas Masirori Kateti v Sebege [1969] HCD 11. I

1988 TLR p190
KAZIMOTO J
Mwingira, for the respondent A
[zJDz]Judgment
Kazimoto, J.: The appellant was sucessfully sued by the respondent in Myangayanga Primary Court. He appealed to the District Court Mbinga and his appeal was dismissed. B He is now appealing to this court. The appellant appeared in person and the respondent was represented by Mr. Mwingira learned counsel. Having heard arguments from both parties I dismissed the appeal with costs and reserved my reasons. Now I proceed to give them.
First the background to the case. The respondent is a resident of Mateka village. The C appellant is the chairman of Mateka Village. The respondent had land in Mateka village and

from the evidence on record he has been in that land since 1953. There is a house and permanent trees like coffee trees etc. It appears that he has never abandoned the land. In 1978 one Osmund Leodgar Ndunguru (DW3) was transferred from Tunduru D district to Mbinga district. He is a teacher and he was posted at Mateka primary school within Mateka village. He applied to the Matkea village government for a piece of land to build, and the appellant, through the village building committee allocated him land, E which the respondent claimed to be his. The respondent instituted proceedings against Osmund Ndunguru in Kigonsera Primary Court Civil Case No. 59 of 1983 which the respondent succeeded. Osmund Ndunguru appealled to the District Court Mbinga in Civil Appeal No. 81 of 1983. The district court quashed the proceedings for lack of F jurisdiction on the part of the trial court. The respondent was advised, if he wished, to institute fresh proceedings in the court having jurisdiction to try the suit. It transpired during those proceedings that Osmund Ndunguru had a letter of allocation issued by the appellant as chairman. The respondent then instituted the present proceedings against the appellant who allocated the subject matter of the suit. G

Both the trial court and the first appellate court found that the land which appellant had allocated to Osmund Ndunguru belonged to the respondent, that the land belonged to the father of the respondent one Francis who actually planted the permanent trees. The H district court held further that the village government had no right to allocate developed land without the prior consent of the owner thereof.

Now I turn to the grounds of appeal. The first issue is whether a village government can lawfully allocate land within its jurisdiction which is under the possession of another I villager who is developing it. I do not hesitate to answer that question with a big emphatic no.

1988 TLR p191

KAZIMOTO J

Common sense will not allow it. Equity will forbid it. While saying so I should not be A taken to question the power of a village government to allocate land within its jurisdiction which has not been allocated to any person. Nor do I question the powers of a village government to allocate land which is already allocated to another person if the person in possession of such land is consulted prior to the re-allocation and he had consented to B the proposed re-allocation. A village government which allocated land, as in the present case, which is already under development and in the possession of another person would not only bring lawlessness and anarchy to the villages but would also retard the C development of the villages.

In Lukas Masirori Kateti v Sebege [1969] HCD 11 this court warned village development committees to use their powers justly and wisely instead of creating discontent amongt the inhabitants whom they are entrusted to look after. In that case the D respondent had already been allocated land. The village development committee re-allocated the same land to the appellant in that case. I would like to associate myself with the decision in that case and echo the same warning.

In the present case the respondent has been in possession of the land. He was not E consulted prior to the re-allocation of the land by the appellant to Osmund Ndunguru. The respondent did not consent and as it turns out he has resisted it. In my judgment I concur with the findings of

the district court that the appellant has no right to allocate or re-allocate land within its jurisdiction which is in the possession of another villager F without the prior consent of the respondent.

The appellant has argued in his memorandum of appeal and before me that he was wrongly sued and that the person to be sued was Osmund Ndunguru. Mr. Mwingira for G the respondent has argued that Osmund Ndunguru had no fault. He applied to the village government which, allocated him the land in question by the appellant. He contendend that the case against the appellant has been properly instituted.

I agree with the submission of learned counsel. Osmund Ndunguru did not forcefully H enter the respondent's land. He submitted an application to the village government. That application was accepted and approved. The appellant as chairman allocated the land to Osmund Ndunguru who entered into the land under the authority of the appellant. Had I he done so without authority Osmund Ndunguru would be liable to be sued for ejection. As the appellant

is the authority which allocated the land in dispute he cannot be heard to complain for A being sued in court.

The appellant has raised another point in his memorandum of appeal and in his submissions. He has submitted that this case has already been decided by the High B Court between Osmund Ndunguru and the respondent. He querried the "wisdom" of the law in instituting this fresh suit against him. He was having in mind the principles of res judicata.

Mr. Mwingira has argued that the appellant has no defence under section 9 of the Civil C Procedure Code. He submitted that the appellant was not a party to those proceedings.

I have already indicated that in Kigonsera Primary Court civil case No. 59 of 1983 the parties were Antony Hyera and Osmund Ndunguru. In Mbinga District Court Civil Appeal No. 81 of 1983 the parties were Osmund Ndunguru and Antony Hyera. The D appellant as chairman was not a party to those proceedings. As I have said those proceedings were quashed. The effect of quashing court proceedings is to put the parties in the same position as if there had never been any proceedings. Under the circumstances nothing has been finally decided.

Even if Osmund Ndunguru had won the appeal, that is there was a final decision on the E matter the plea of res judicata is not open to the appellant. One of the conditions for successful invocation of the plea of res judicata is that the parties in the previous suit must be the same as in the present suit. As demonstrated the appellant was not a party in F the previous suit in Kigonsera Primary Court Civil Case No.59 of 1983 and Mbinga District Court Civil Appeal No. 81 of 1983. The plea is therefore not maintainable in law.

The appellant has argued that the trial court and the District Court had wrongly analysed the evidence on record. He contended that there were no permanent trees on the land. G He complained about the sketch plan and that they did not take into account the evidence of Mputa who said that the land which was allocated was his and not that of the respondent.

Mr. Mwingira has argued that the appellant did not personally go to the land to ascertain H if Osmund Ndunguru was allocated proper land. He stated that according to the evidence the

appellant said that he thought the land belonged to Joseph Lihakihala who denied that the land allocated to Osmund Ndunguru was his.
The evidence of Vicent John (DW4) and Joseph Lihakihala and Mputa DW5 is I unambigous. DW4 was the chairman of the building committee. According to his evidence they went to DW5
1988 TLR p193
who showed them the area they allocated to Osmund Ndunguru. But DW5 had denied A this for he stated that the village government asked him who was living in the shambas which they were asking. He said in no uncertain terms as follows and I quote.

Serikali ya kijiji haikuwa na madaraka na sehemu hiyo. Waliokuwa wanaishi katika eneo la B ugomvi wote wamekufa akiwa ni baba yake Francis.

According to the testimony of the respondent Francis was his (respondent's) father. The trial court considered this evidence and accepted it as correct. The first appellate court C agreed with the assessment of the trial court. In view of the evidence of DW5 this court does not agree that the courts below had come to a wrong conclusion in its evaluation of the evidence of DW4 and DW5.
In the upshot therefore, I dismiss the appeal with costs. D
Appeal dismissed.
1988 TLR p193
E
[zRPz]REUBEN S. PETER v ATHUMAN NHIGA 1988 TLR 193 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

20 October, 1988 F
Flynote
Customary Law - Tort - Claim for damages for loss of anticipated bridewealth due to daughter's pregnancy.
Customary Law - Tort - Claim for compensation for expenses incurred on girl's education. G
Customary Law - Tort - Assessment of damages or compensation.
Tort - Customary law tort - Claim for damages for loss of anticipated bridewealth due to H daughter's pregnancy.
Tort - Customary law tort - Damages - Claim for damages for expenses incurred on girl's education.
Tort - Customary law tort - Damages - Assessment of .
-Headnote
The respondent unsuccessfully sued the appellant, Reuben S. Peter, for 20 head of cattle for loss of anticipated bridewealth, education and other expenses following the I respondent's daughter being put
1988 TLR p194

CHIPETA J

in the family way by the appellant while the said girl was under the respondent's care and A schooling. On appeal to the District Court, that court held that the respondent was entitled to compensation and granted 20 head of cattle to him as compensation hence the present appeal. B

Held: (i) The respondent did suffer damage in that in the event of the girl getting married, she was unlikely to fetch as much bridewealth as she would have fetched were it not for the pregnancy out of wedlock and that Paragraph 89 of the Local Customary C (Declaration) Order, GN No. 279 for 1963 presupposes that the rule as to payment of compensation is meant to set off loss of anticipated bridewealth to a parent;

(ii) it is the duty of every parent to educate his child to the best of his ability and the ability of the child. Such duty, therefore, should not be a subject of compensation; D

(iii) the assessment of damages or compensation is within the discretion of the court and in exercising that discretion, the court must pay due regard to the customary practice of the community to which the parties belong as to the average amount of E bridewealth ordinarily payable for women who have had no pregnancy out of wedlock and for those who have had children or pregnancies out of wedlock, and other related payments;

(iv) while it is true that under the Sukuma customary practice, a woman who became pregnant out of wedlock stands a lesser chance of getting married, it would still F not be fair to allow full compensation which is equivalent to the would be bride price for a woman who is not pregnant, the reason being that it is also well

known that women who have had pregnancy out of wedlock do marry, notwithstanding the less bridewealth they fetch.

Case Information

Appeal Allowed. G

Cases referred to.

1. Julius v Denis [1972] HCD 1.
2. Yahaya Abed v Mrisho Hussein [1976] LRT n. 56. H
3. Ananiah v Mwaitebele [1972] H.C.D. n.1.

[zJDz]Judgment

Chipeta, J.: In Shinyanga Primary Court at Nindo, the respondent, Athumani Nhiga, unsuccessfully sued the appellant, Reuben S. Peter, for 20 head of cattle for loss of I anticipated bridewealth, educational and other expenses following the

respondent's daughter being put in the family way by the appellant while the said girl was A under the respondent's care and was schooling.

It was conceded in both courts below that the appellant did put the respondent's daughter in the family way. The trial court, however, dismissed the suit holding that the respondent had suffered no damage. B

On appeal to the District Court, the District Court held that the respondent did suffer damage in that in the event of the girl getting married, she was unlikely to fetch as much bridewealth as

she would have fetched were it not for the pregnancy out of wedlock. C The first appellant court accordingly granted 20 head of cattle as damages.

With respect, I am inclined to agree with the first appellate court. In principle a parent whose unmarried daughter under his care is made pregnant by some person is entitled to D be paid compensation by that other person. This principle, I dare say, springs from the customary practice of payment of bridewealth and other related payments. It is generally recognized that a woman who has a child out of wedlock usually reduces her chance of marrying and, if she does marry, she usually fetches less bridewealth than one who has E had no child or pregnancy out of wedlock.

This court has reiterated that principle on many occasions. (See Yahaya Abedi v Mrisho Hussein) [1967] LRT n. 56; Ananiah v Mwaitebele, [1972] H.C.D. n. 1; and Julius v Denis, [1971] H.C.D. n. 264). F

This principle, in my view, is in accord with the provisions of Paragraph 89 of the Local Customary law (Declaration) Order, G.N. No. 279 of 1963, which provides for the payment of a fine and compensation to the father by any person who entices such father's daughter who is under his care. That Paragraph and the following Paragraphs, it G should be noted, deal with questions of matrimony, the payment of bridewealth and matrimonial assets. That, in my opinion, presupposes that the rule as to payment of compensation is meant to off set loss of anticipated bridewealth by a parent.

In the present case, therefore, the respondent is clearly entitled to compensation in H respect of his daughter's pregnancy out of wedlock.

The respondent also claimed compensation or damages for the expenses he has incurred on the girl's education. The first appellate court declined to grant this relief and, in my I view, rightly so. It is the duty of every parent to educate his child to the best of

his ability and the ability of the child. Such duty, therefore, ought not to be a subject of A compensation. (see Yahaya's case - supra).

Perhaps the greatest problem which such cases present is the assessment of damages or compensation payable. In Yayaya's case (supra) this court awarded shs. 1,200/=; but in B Ananiah's case (supra) this court reduced an award of shs. 600/= to shs. 200/=.

I respectfully agree with late Mwakasendo (Acting Judge as he then was) in Ananiah's case that the assessment of such compensantion is within the discretion of the court. I wish to add, however, and with respect, that in exercising that discretion the court must C pay due regard to the customary practice of the community to which the parties belong as to the average amount of bridewealth ordinarily payable for women who have had no pregnancy out of wedlock and for those who have had children or pregnancies out of wedlock, and other related payments.

In this regard, it is my view that apart from whatever evidence the parties may adduce on D the point for the assistance of the court, court assessor can be of immense help to a trial court.

In the instant case, both parties are Wasukuma of Shinyanga where the amount of bridewealth payable ranges between 20 and 40 head of cattle. For his part, the E respondent in this case

claimed 30 head. His argument or basis for that figure was that he would have received that much as bridewealth if his daughter had married without the pregnancy out of wedlock. With respect, I do not think that that would be fair and just. While it is true that the chances of marrying are less for a woman who has had F pregnancy out of wedlock than one who has not, it is also well known that women who have had pregnancies out of wedlock do marry, although they are generally expected to fetch less bridewealth.

It also appears to me, in the present case, that in claiming that amount of compensation, G the respondent was influenced by, or took into account, his expenses for his daughter's education. These I have disallowed.

Having the foregoing in mind, and doing the best I can on the material available, I award compensation of seven head of cattle.

To the extent of the reduction of the amount of compensation payable, the appeal H succeeds but it is otherwise dismissed. The respondent shall have his costs in this court and both courts below.

I Order accordingly.

1988 TLR p197

A

[zRPz]MOHAMED ABDALLAH v HALIMA LISANGWE 1988 TLR 197 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Mnzavas JK

4 November, 1988

Flynote

Family Law - Division of matrimonial property - Whether bearing and rearing children B entitles a share in the economic fruits by husband - S.114 of Law of Marriage Act, 1971.

Family Law - Division of matrimonial property - Respondent cleared the construction site - Whether she participated in the cunstructionn of the house. C

-Headnote

Marriage was declared irreparably broken down and thus dissolved by the trial court. The main issue was the division of the matrimonial house. Assessors and magistrate at the trial court had different views. In his determination, the District Court Magistrate D accorded the award of the division of the house.

Appellant aggrieved, appeals arguing non-participation on the part of the respondent in the construction of the house.

Held: (i) The principle under the division of property under s.114 of Law of Marriage E Act is one of compensation. Whether what is being compensated is direct monetary contribution or domestic services, it does not matter.

(ii) respondent's participation in clearing the site where the house was built amounted to her participation in its construction. F

Case Information
Appeal dismissed.
No case referred to. G
[zJDz]Judgment
Mnzavas J.K.: The appellant and the respondent were married in 1972 under Islamic law and cohabitated in Newala and Dar es Salaam where they are now domiciled.
The marriage started disintegrating in 1986 when the appellant married a second wife. Efforts by local conciliation board to reconcile them were of no avail and consequently H the respondent filed a petition seeking for divorce and division of matrimonial property.
The Magomeni Primary Court (in Magomeni Primary Court Civil Case No. 13 of 1987) the Primary Court magistrate and the two assessors agreed that the marriage between I the parties had
1988 TLR p198
MNZAVAS JK
irreparably broken down and accordingly dissolved the union. A
They however differed on the question of division of matrimonial property. The two elders were of the view that the property, a house at Mburahati, was built by the appellant without any assistance from the respondent/petitioner and therefore concluded B that the respondent/petitioner was not entitled to a share in the house.
The Primary Court magistrate was, on the other hand of a different view. He was on the evidence, of the opinion that the respondent/ petitioner had contributed in the acquisition C of the house and therefore entitled to a share in the house. As the Primary Court magistrate was of the view that the two gentlemen assessors had erred he forwarded the record to the District Court for determination as to which of the two opposed views was right.
In his assessment of the evidence tendered in the court of first instance the learned D district magistrate was convinced that the house was jointly acquired by the parties during the subsistence of the marriage and that the respondent/petitioner was entitled to a share in the house as found by the Primary Court magistrate.
The District Court accordingly invoked its powers under section 21 of the Magistrates' E Courts Act and reversed the majority judgment of the Primary Court and ordered that the Primary Court assess what the respondent was entitled as her share in the acquisition of the house and be paid by the appellant/respondent.
Dissatisfied by the decision of the District Court the appellant/ respondent has appealed F to this Court.
Before this Court the appellant recapitulated his defence in the lower courts that the respondent/petitioner did not contribute in the acquisition of the house; and that he built the house through a loan from Tanzania Housing Bank. Appellant's argument that he G secured a loan from the bank to build the house may well be true but that does not necessarily mean that the respondent/petitioner did not contribute in the acquisition of the house.
The law regarding section 114 of the Law of Marriage Act is now well settled. The H principle underlying division of property under section 114 is one of compensation, it does not matter nor

does it make any difference whether that being compensated is direct monetary contribution or domestic services.

There was no dispute that during the subsistence of the marriage in which the house was I built the respondent/petitioner bore children, reared them and took care of the matrimonial home. She thereby freed her husband, the appellant, for his economic

1988 TLR p199

activities. She is therefore entitled to share in the economic fruits. And what is more there A was independent evidence from Saidi Omari (PW2), which was to the effect that the respondent/petitioner participated in the construction of the disputed house by clearing the ground on which the house is built. Apparently the appellant did not challenge this evidence. I agree with the decision of the District Court that the respondent/petitioner B contributed in the acquisition of the house and she is therefore under section 114 of the Law of Marriage Act entitled to a share in the house.

Let the Primary Court assess the value (in monetary form), of her contribution and the respondent pays the sum to her as compensation. In the event the appellant fails to pay C compensation to the respondent the house will have to be sold to realize respondent's share.

The appeal accordingly fails. The respondent to have her costs in this and the lower courts. D

Appeal dismissed.

1988 TLR p199

E

[zRPz]MRS KAMIZ ABDULLAH M.D. KERMAL v THE REGISTRAR OF BUILDINGS AND MISS HAWA BAYONA 1988 TLR 199 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Makame JJA and Omar JJA

11 November, 1988 F

Flynote

Civil Practice and Procedure - Appeals - Notice of Appeal lodged in time - Period within G which appeal may be instituted - Court of Appeal Rules, Rule 83(1).

Civil Practice and Procedure - Appeals - Notice of Appeal lodged in time - Delay in instituting appeal - Time excluded in computing period within which appeal may be lodged H - Prerequisite for obtaining exclusion of time - Court of Appeal Rules, Rule 83(1)(2).

Civil Practice and Procedure - Appeals - Notice of Appeal lodged in time - Leave to appeal and certificate on point of law required - Failure to institute appeal within prescribed period, I failure due to delay in obtaining leave and certificate - Whether curable

1988 TLR p200

A Course of action open to party likely to be affected by the delay - Court of Appeal Rules, Rule 8.

Civil Practice and Procedure - Appeals - Notice of Appeal lodged in time -Failure to institute appeal within prescribed period - Effect - Court of Appeal Rules, Rule 84.
-Headnote

B The appellant was aggrieved by an ex parte order of the High Court of Tanzania at Dar es Salaam dated 10/6/88 granting stay of execution of a decree of the Regional Housing Tribunal for Dar es Salaam Region. The appellant sought to have that order set aside in an application to that effect filed in the High Court. The said application was C not pursued to its logical conclusion. Subsequently, the appellant lodged a notice of appeal against the ex parte order of the High Court and an application for a certificate on points of law. The High Court granted leave and certificate on a number of points of law.

D About three months after the appellant had lodged her notice of appeal she instituted the present appeal by lodging the necessary documents.

When the appeal came up for hearing, a preliminary point of law arose to the effect that the appeal was incompetent E as the same was not instituted within the 60 days period prescribed under the provisions of Rule 83 of the Tanzania Court of Appeal Rules, 1979. It was argued by Mr. Kesaria, learned advocate for the appellant, that the F appeal could not be instituted before the High Court granted leave and certificate on 13/9/81.

Held: (i) An appeal to the Court of Appeal must be instituted within 60 days of the date when the notice of appeal was lodged;

G (ii) the time required for the preparation and delivery of copy of proceedings in the High Court shall be excluded in computing the time within which an appeal to the Court of Appeal is to be instituted if an application for that copy has been made within 30 days of the decision to appeal; such time has certified by the registrar of the High Court as having been required for the preparation and delivery of the copy of proceedings and the application for H that copy was in writing and a copy thereof was sent to the other party;

(iii) where delay in instituting appeal is caused by good reasons, other than the time taken in preparing the I record of appeal, a prudent party to the proceedings may safeguard its position by applying for extension of the period prescribed for the doing of any act under Rule 8 of the Tanzania Court of Appeal Rules. It was thus

open for the appellant in this case, particularly at the time when she was applying for leave and certificate of the High A Court, to also apply to this Court to extend or enlarge the period prescribed for instituting the appeal;

(iv) under Rule 8 of the Court of Appeal Rules failure to institute an appeal within the prescribed 60 days B renders the appeal incompetent and furthermore, the appellant is deemed to have withdrawn his appeal.

Case Information

Appeal dismissed.

Cases referred to: C

1. Enock Chacha v Mwanza Fishnet Manufacturers Ltd. Civil appeal no. 10 of 1987.

2. Wile Mkandala v Phillip Chila Civil appeal no. 13 of 1984.

Kesaria, for the appellant. D

[zJDz]Judgment

Nyalali, C.J., Makame and Omar, JJ.A.: When this appeal came up for hearing on the 31st October, 1988, a preliminary matter of law arose concerning the competence of the appeal. The matter concerns non-compliance by E the appellant with the provisions of Rule 83 of the Tanzania Court of Appeal Rules 1979, which require an appeal to be instituted by filing the record of appeal within 60 days from the date of the notice of appeal. That Rule states:

83 (1) subject to provisions of Rule 122, an appeal shall be instituted by lodging in the appropriate registry, within 60 days F of the date when the notice of appeal was lodged:

(a) a memorandum of appeal, in quintuplicate;

(b) the record of appeal, the quintuplicate;

(c) the prescribed fee; and G

(d) security for the costs of the appeal,

save that where an application for a copy of the proceedings in the High Court has been made within 30 days of the H decision against which it is desired to appeal, there shall, in computing the time within which the appeal is to be instituted, be excluded such time as may be certified by the Registrar of the High Court as having been required for I the preparation and delivery of that copy to the appellant.

1988 TLR p202

NYALALI CJ, MAKAME JJA AND OMAR JJA

A (2) An appellant shall not be entitled to rely on the exception to sub-rule (1) unless his application for the copy was in writing and a copy of it was sent to the respondent.

It is apparent from the record that the order against which this appeal is brought was that made by the High Court, B Mnzavas, JK on the 10th June 1988 granting stay of execution of a decree of the Regional Housing Tribunal for Dar es Salaam Region. That order of the High Court was granted ex-parte. The appellant was aggrieved by the decision of the High Court and he apparently sought to have it set aside in an application to that effect filed in the C High Court on the 15th June, 1988. The application was supported by an affidavit of the appellant in this case. It would seem from the record that this application was not pursued to its logical conclusion. On the 22nd June 1988, D a notice of appeal to this court was filed by the appellant against that order of the High Court. On the same day of 22nd June 1988, the appellant applied in the High Court for leave to appeal to this court, and for a certificate on points of law. On the 13th September 1988, the High Court, Mapigano, J. granted leave and certified a number of E points of law for decision by this court. 16 days later, that is on 29th September 1988, the appellant instituted this appeal by lodging in the appropriate registry the documents stated under Rule 83.

It is evident from the record that about three months had expired from the date of notice of appeal to the date when F the appellant instituted the appeal by lodging the necessary

documents in the appropriate registry. Mr. Kesaria, learned advocate for the appellant has argued to the effect that the appeal could not be instituted before the High G Court granted leave and the certificate on the 13th September 1988. We appreciated the logic of this argument but with due respect to learned counsel, this logic must be applied within the context of the law. The law provides not only for the period within which an appeal must be instituted, but provides also for situations where there may be H good cause for delay in instituting the appeal within the prescribed period of 60 days. For instance, where delay is due to time taken in preparing the record of appeal, such time certified by the Registrar of the High Court will be excluded in computing the prescribed period, provided of course, a copy of the proceedings is applied for in writing I within 30 days of the judgment or order appealed against, and the application is copied to the other party. Furthermore, where the delay in instituting the appeal is caused by other good reasons, a prudent party to the

proceedings may safeguard its position by applying for extension of any period prescribed for the doing of any act A under Rule 8 of the Tanzania Court of Appeal Rules. It was thus open for the appellant in this case particularly at the time when applying for leave and the certificate of the High Court, also to apply to this court to extend or enlarge the period prescribed under Rule 83. This the appellant failed to do, and he has only himself or his advocate to blame B for the consequences.

What then are the legal consequences for the failure to institute the appeal within the period prescribed under Rule 83? This court has consistently held that such failure renders the appeal incompetent. Under the provisions of Rule C 84, the appellant "shall be deemed to have withdrawn his notice of appeal". (See the case of Enock Chacha v Mwanza Fishnet Manufacturers Ltd. Civil Appeal No. 10 of 1987 (decided by this court but not yet reported. Also the case of Wile Mkandala v Phillip Chilla, Civil Appeal No. 13 of 1984 (decided by this court but not yet D reported).

In the final analysis therefore, we find the appeal incompetent, and the appellant is deemed to have withdrawn his notice of appeal, with cost to the respondent. We order accordingly. E

Order accordingly.

1988 TLR p203

F

[zRPz]NITIN COFFEE ESTATES LTD AND 4 OTHERS v UNITED ENGINEERING WORKS LTD AND ANOTHER 1988 TLR 203 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Mustafa JJA, Makame JJA and Kisanga JJA

11 November, 1988 G

Flynote

Company law - Agreement to sell shares - No agreed price nor means to ascertain price - Effect of uncertainty on the agreement.
Contract - Agreement to sell shares - No agreed price nor means to ascertain price - Effect of uncertainty on the agreement. H
Contract - Oral agreement to sell farms held under Right of Occupancy - Writing and consent requirements not complied with - Part performance of the agreement - Whether Regulation 3(1) of the Land Regulations 1948 applicable. I
Land law - Agreement to sell farms held under Right of Occupancy
1988 TLR p204
MUSTAFA JJA, MAKAME JJA AND KISANGA JJA
A Writing and consent requirements not complied with - Part performance of agreement - Whether Regulation 3(1) of the Land Regulations 1948 applicable.
-Headnote
B In 1983 the 4th and 5th appellants, shareholders and directors of the 1st and 2nd appellants (limited liability companies), in view of the "crack down" and the state of fear it generated, sold the total shareholding in and all the assets of the 1st and 2nd appellants to one Manik, the 2nd respondent. The assets included two farms held under C Right of Occupancy. The agreement was made orally. The price of shares was not agreed upon and there was no means of ascertaining it. The 2nd respondent, Manik, was put in occupation of the farms as the buyer. In 1986 the appellants sought to repudiate the agreement arguing that they did not sell the farm to Manik and in the alternative that if there was any such agreement at all it could not be enforceable for lack of writing and consent as required by D Regulation 3(1) of the Land Regulations, 1948.
Held: (i) As the price was not agreed, and there were no means of ascertaining such price in a sale of individual shares, there was no agreement due to uncertainty;
E (ii) the agreement by 4th and 5th appellants to sell their shares was void for uncertainty in terms of section 29 of the Law of Contract Ordinance, Cap. 433;
(iii) an oral agreement to sell land held under a Right of Occupancy is inoperative and of no effect in terms of F Regulation 3(i) of Land Regulations, 1984;
(iv) the doctrine of part performance cannot help as in Tanzania the regulation in question requires both writing and consent.
Case Information
G Order accordingly.
Fimbo, for the Appellants.
Marando, for the Respondents.
[zJDz]Judgment
H Mustafa, Makame and Kisanga, JJ.A.: In the High Court at Arusha the United Engineering Works Ltd. and Jagdev Singh Manik as 1st and 2nd Plaintiffs respectively sued the Nitin Coffee Estates Ltd., Rafiki Estates Ltd., Nanji Devchand Patel, Sudhir Nanji Ondhia and Vineshwar Nanji Ondhia as 1st, 2nd, 3rd, 4th and 5th defendants I respectively. The Plaintiffs had alleged that the 4th

defendant Sudhir Ondhia and the 5th defendant Vineshwar Ondhia acting on behalf of themselves and of all the A other shareholders and directors of 1st and 2nd defendant companies had orally concluded negotiations to sell to the Plaintiffs all the shareholding in the 1st and 2nd defendant companies, and all the movable and immovable assets, including the farm at Oldeani held by the 2nd defendant company on a Right of Occupancy. B

The 1st Plaintiff is a limited liability company and the 2nd Plaintiff is the managing director and principal shareholder of the 1st Plaintiff Company.

The 1st and 2nd defendants are limited liability companies and the 3rd, 4th and 5th defendants are shareholders and C directors of the 1st and 2nd defendant companies. It appears that both the Plaintiff limited company and the Defendant limited companies are owned and controlled by the family members of the 2nd Plaintiff and the family members of the 3rd, 4th and 5th defendants respectively. D

It was alleged by the plaintiffs (hereinafter called the respondents) that the global purchase price for the two defendant companies, lock stock and barrel, and of the total shareholding in those two defendant companies was shs. 10 million. E

The defendants (hereinafter called the appellants) denied that the 4th and 5th appellants had concluded negotiations for the sale of the total shareholding and all movable and immovable assets of the 1st and 2nd appellant companies for the global sum of shs. 10 million or at all. And in so far as the alleged sale of the farms of the 1st and 2nd F appellant companies was concerned they submitted that the agreement was in any event unenforceable for lack of writing and the requisite content.

The cases came up for trial before Mwakibete, J. The respondents' case briefly was as follows. The respondent G Manik alleged that in 1983 there was what was known as the "crack down" in Tanzania and many businessmen were in a state of near panic and were selling their properties at give away prices. Manik understood that the farms of the appellant companies were for sale and he saw the 4th and 5th appellants who confirmed that it was true. 4th and 5th appellants told Manik that the total price was 10 million shillings. It was also agreed that Manik was to pay H 2.4 million shillings and the balance of the purchase price was to be paid from the proceeds of the crops grown in the two farms. After the total purchase price had been paid all the shares held in the 1st and 2nd appellant companies as well as all the assets of the two appellant I

A companies were to be transferred to the two respondents in proportions as would be decided by Manik. Only some holy pictures and brass vessels used by the 3rd, 4th and 5th appellants would not be transferred. As a result of the agreement Manik made payment of 2 million 75 thousand shllings to the appellant and was put in possession of B the farms and all the properties therein. That was in October/November, 1983. Manik was proclaimed to the staff and others as the new owner. Manik was also given 50 shares in the Nitin Coffee Estates Ltd. Manik

worked the farms and used his own money in maintaining and developing them, and from the proceeds of the crops and coffee, C paid off the balance of the purchase price to the appellants towards the end of 1985.

Manik approached the appellants in early 1986 for the transfer of the shareholding, directorship and the farms to him and his company, but the appellants repudiated the agreement to sell.

D The respondents in March, 1986 filed action against the appellants for specific performance i.e. for the appellants to transfer all their shares in the two limited companies and for the two limited companies to transfer all their assets including the two farms to the respondents and a refund of 10.6 million shillings being the alleged excess payment in E respect of the agreed purchase price and for damages for breach of contract.

The appellants in Court denied that the 4th appellant and the 5th appellant had concluded any agreement of sale as alleged by Manik. They admitted receipt of Shs. 3 million and 75 thousand from the respondents but alleged that it F was in part payment for the 50 share in Nitin Coffee Estate sold by one Anupkumar Ondhia. The appellants alleged that the price for those 50 shares was 2.5 million shillings. They claimed that Manik was given possession of the two farms of the 1st and 2nd appellant companies as a director, and not as owner thereof. Manik was managing G and running the farms and he was paid a director's fee, as most of the shareholders and directors of the two companies were then living outside Tanzania.

Both the 4th and 5th appellants in their statement of defence denied selling their shares to the respondents. Appellant H 4 testified in court to that effect, but appellant 5 did not testify. The appellants claimed that only 50 shares of one Anupkumar Ondhia in Nitin Coffee Estate were sold to the respondents.

In any event the appellants contended that an alleged sale of the farm was unenforceable and of no effect as the I agreement was not in writing and was without the requisite constent.

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MUSTAFA JJA, MAKAME JJA AND KISANGA JJA

The appellants in a counterclaim asked the respondents to give an account of their stewardship of the farms with full A accounts.

A number of witnesses were called on both sides in what appeared to have been a rather protracted trial.

The trial judge reviewed and analysed the evidence adduced with care and concluded that the sum of 2 million 75 B thousand shillings paid by Manik was in part payment of the purchase price of the sale of the appellants' farms and "possibly some of the shares". He also held that the putting of Manik into occupation of the farms was in part performance of the agreement to sell. He held that there was an irresistible conclusion of that there was an oral C agreement to sell the two farms of the 1st and 2nd appellant companies as alleged by Manik, although it was uncertain what the prices for them were. He held that because there was part performance of the agreement to sell the two farms, Regulation 3(1) of the Land Regulations 1948 (Cap 113 Supplement 64) would not be applicable D and he concluded that the oral agreement to sell the farms, "in the circumstances of this case" was enforceable.

As regards the 50 shares in Nitin Coffee Estates Limited sold by Anupkumar Ondhia, he considered the conflicting evidence adduced as to the price of the said shares. He concluded that the 50 shares were sold for shs. 125,000/= E and not 2.5 million shillings as contended by the appellants.

As regards the sale of shares by the 5th appellant, the judge held that since the 5th appellant did not testify although he was in court throughout the trial, he believed Manik that the 5th appellant had agreed to sell his shares to the F respondents, that is, 50 shares in Nitin Coffee Estates Limited. The judge stated "On the evidence plaintiff paid for the shares".

In regard to the sale of the shares by the 4th appellant, the judge stated that he preferred the evidence of Manik to G that of appellant 4, and believed Manik that 4th appellant had agreed to sell his shares. And the judge also added "having paid the purchase price in relation thereto."

With regard to the shares of appellant 3, the judge found that the 4th and 5th appellants had no authority to sell the H share of appellant 3, and such an agreement, even if made, was not enforceable against appellant 3.

And so far as the shareholders absent from Tanzania were concerned, the judge was unable to discover that 4th and 5th appellants had any authority to sell their shares. The judge was unable to find any clear and unambiguous I evidence to indicate that

A these absent shareholders had authorised or consented to the sale of their shares by 4th and 5th appellants. He held the agreement concerning these sales were not enforceable.

The judge considered the prayers for specific performance. He was of the opinion that since the sale of the majority B of the shares in the 1st and 2nd appellant companies was unenforceable, it would be "absurd granting the prayer for specific performance in relation to movable and immovable assets of Nitin Coffee Estates Limited and Rafiki Estates Limited."

C He ordered specific performance in respect of the sale of the shares by 4th and 5th appellants to the respondents.

He refused specific performance of the sale of the two farms and awarded damages "diverting the appellants of what they have unjustly benefited."

D He ordered that the appellants jointly and severally refund the respondents as under:

(1) The purchase price under the agreement 10 million shillings;

(2) The sum of shs. 10,608,620/= paid in excess of purchase price;

E (3) An agreed sum of 5 million shillings incurred by respondents in running the two farms from October 1983 to date of filing suit, that is, 5/3/86. A further sum in respect of such expenses be computed and taxed from date of filing suit to date of vacant possession;

F (4) The crops from Nitin Coffee Estate and Rafiki Estate which are in stores awaiting delivery to TCGA to be sold, and the coffee or any other crops to be picked this season from the two farms, belong to the respondents;

(5) General damages at 5 million shillings.

G He also ordered the respondents (in error appellants stated) to give possession a month after payment, within a month of this judgment, of the decretal sum in full. He awarded costs of the

suit to the respondents. The judge dismissed the appellants' counterclaim and awarded costs of the counterclaim to the respondents.

H The appellants have appealed from that judgment. The respondents have also appealed. I will treat the respondents' appeal as a cross-appeal.

The appellants' appeal is on the following main grounds:

I (1) The oral agreement to sell the land is unenforceable because of Regulation 3(i) of Land Regulations 1948. The

agreement is also illegal because it transgressed the Companies Ordinance Cap. 212 and was without the A approval of the Bank of Tanzania.

(2) The judge erred in holding that appellant 4 and appellant 5 had agreed to sell their shares and in any event such an agreement was void for uncertainty. B

(3) The judge erred in holding that the price for the 50 shares sold by Anupkumar Ondhia was shs. 125,000/= and not 2.5 million shillings.

(4) The judge erred in ordering the refund of the purchase price and the excess amount paid and in awarding C 5 million as general damages.

(5) The judge erred in refusing to order the respondents to give a full account to the appellants since the respondents' accupation of the farms.

The respondents' cross-appeal is on the following grounds: D

(1) The judge erred in holding that the 4th appellant and 5th appellant did not have authority to sell the shares of the absent shareholders, and in failing to order specific performance of the sale of the two farms. E Alternatively,

(2) The judge erred in awarding grossly inadequate damages.

I have perused the evidence on record and have carefully considered the submissions of learned counsel before this F court. I am of the opinion that the trial judge was right in his findings of fact. I am of the view that the 4th appellant and the 5th appellant did, in view of the "crack down" and the state of fear which it generated, want to sell the total shareholding in and all the assets of the 1st and 2nd appellant companies to Manik. I believe that there was an oral G agreement between Manik in his evidence. Manik was put in occupation of the farms as the buyer, not as a director or manager. On the basis of such facts I will now deal with the legal consequences flowing therefrom. H

I have said that the trial judge was correct in his findings of fact. Unfortunately, I cannot say the same about his conclusions in law. I begin with the applicability of Land Regulations 1948 to the oral agreement concerning the sale of the two farms.

I will set out the relevant Land Regulations: I

A "Land Regulations 1948 (Cap.113 - Supplement 64)

3 (1) A disposition of a Right of Occupancy shall not be operative unless it is in writing and until it is approved by the President (later to be Director Land Development Services).

B (2) n.a.

(3) In this regulation "disposition" means -

(a) a conveyance or assignment other than by way of mortgage....

C (b) n.a.

(c) a deed or agreement or declaration of trust binding any party to make such disposition as aforesaid, including a D deed or agreement entitling a party thereto to require any such disposition to be made.

In my view an oral agreement of the type sued on to sell land held under a Right of Occupancy is in-operative and of no effect. There is a long line of authority to that effect. In Patterson and another v Kanji (1956) E.A.C.A. 106 at E 111 the Court of Appeal of East Africa dealing with a similar regulation stated that one cannot seek "to enforce at law which he can only establish by relying on a transaction declared by law to be inoperative". That decision was followed in Patel v Lawrenson [1957] E.A. 9, Kassam v Kassam [1960] E.A. 1042 and in Patel v Marealle F and Another Court of Appeal C.A. 5/84 (unreported).

It seems that the trial judge was persuaded that since the agreement was part performed the need for writing could be dispensed with. But there was still the need for the requisite consent. In England at one stage, in order to prevent G fraud, certain transactions had to be evidenced by writing, otherwise they were of no effect. As a result a number of injustices occurred. To mitigate the harshness of that rule, part performance of an agreement was later held to be sufficient evidence of the transaction, if no writing existed. And that was later incorporated in the Statute of Frauds in H England. The doctrine of part performance cannot help as in Tanzania the regulation in question required both writing and consent.

Mr. Marando for the respondents submitted that there is some confusion on this matter in the High Court. He I referred to a High Court decision Sylveni Mushunga v Theonestina Rwekanika [1974]

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LRT n. 30. Mfalila, J. in that case purported to distinguish it from Patterson v Kanji (supra). Mfalila, J. stated: A

I think that Regulation 3 of the Land Regulations 1948 may be abused by unscrupulous sellers. I think that Regulation 3 is applicable only to situations where the President's consent has been sought and refused ... A Contract of sale is not B contemplated by Regulation 3. This regulation refers to dispositions which are define ... to mean conveyances or assignments. A contract of sale is neither of these.

Obviously, Mfalila, J. had overlooked Regulation 3(3) (c) where such a contract is a "disposition". With respect, C that decision of Mfalila, J. was wrong.

Out of courtesy to Mfalila, J. and other judges of his way of thinking perhaps some subsidiary observations may be in order. A Right of Occupancy is something in the nature of a lease and a holder of a right of occupancy occupies D the position of a sort of leasee vis-a-vis the superior landlord. A right of occupancy is for a term, and is held under certain conditions. One of the conditions is that no disposition of the said right can be made without the consent of the

superior landlord. There is now no freehold tenure in Tanzania. All land is vested in the Republic. So land held E under a right of occupancy is not a freely disposable or marketable commodity like a motor car. Its disposal is subject to the consent of the superior and paramount landlord as provided for in the relevant Land Regulations. F

Mr. Marando also called our attention to Denning v Edwardes and another [1960] EA 755 (PC), a case originating from Kenya. That case was inter alia, concerned with section 99(3) of the Crown Lands Ordinance of Kenya. In terms of that section an instrument which G

purports to effect any of the transaction referred to in 'section (2), that is to sell, lease, sublease, assign, mortgage or otherwise ...', will be void without the Governor's consent. H

However, no consent was required to an agreement for the above transaction as an agreement did not "effect a transaction". However, according to Regulations 3 of the Land Regulations 1948 in Tanzania, an agreement of sale is a "disposition" which requires consent. I

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MUSTAFA JJA, MAKAME JJA AND KISANGA JJA

A I am satisfied that the oral agreement concerning the sale of the two farms is inoperative and of no effect, in terms of Regulation 3(1) of Land Regulations 1948.

I will now deal with the sale of shares. I believe that there was an oral agreement by the 4th appellant and 5th B appellant to sell their shares to the respondents. But it is clear that no price was fixed or agreed. The trial judge stated that the sum of shs. 2 million 75 thousand, the initial payment made by Manik, was part payment of the purchase price for the two farms and "possibly some of the shares". I would think that price was one of the C fundamental matters in a sale of individual shares as the ones under consideration. As there was no agreed price and no means of ascertaining such a price there was no agreement, due to uncertainty. I think that the agreement by 4th appellant and 5th appellant to sell their shares was void for uncertainty in terms of section 29 of the Law of Contract D Ordinance Cap. 433.

I agree with the finding of the trial judge that the 50 shares in Nitin Coffee Estates Limited held by Anupkumar Ondhia were sold to the respondents for shs. 125,000. Professor Fimbo for the appellants submitted that Exhibit D4 E and Exhibit P7 - which related to the price of the said shares could not be looked at as they were for internal shareholders only. That submission is totally without merit. On the evidence I agree with the trial judge that the 50 shares of Anupkumar were sold to the respondents for shs. 125,000/=. Professor Fimbo submitted that the sale of the 50 shares to the respondents was illegal as it was made without the permission of the Treasury, in contraventing F of Section 9 of the Exchange Control Ordinance (Cap. 294 Supp. 65). However, there was no evidence that Anupkumar Ondhia was not a resident of Tanzania. No illegality can attach to such a sale in the circumstances.

G Professor Fimbo also referred to section 46 of the Companies Ordinance Cap. 212, which is in part material with section 54 of the U.K. Companies Act, 1948. He quoted several English authorities. Professor Fimbo was concerned with the provision in the agreement of sale that the payment of the balance of the purchase price was to H be obtained from the produce of the two farms of the appellants. The facts in this case differ from the facts in the authorities quoted and in any event no clear indication emerged from Professor Fimbo's laborious efforts on the point.

I At this stage it will be convenient to deal with the cross-appeal concerning the sale of shares of the absent shareholders by appellant 4 and appellant 5. The judge found that there was no evidence that

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appellant 4 and appellant 5 had authority to sell such shares, nor was there evidence that the absent shareholders A had authorised or consented to such sale. That finding was justified on the evidence adduced. That ground of cross-appeal is dismissed. So is the ground of cross-appeal about specific performance of the sale of the two farms; detailed reasons have already been given. B

The appellants complained about the order of the judge for them to refund the purchase price of 10 million shillings and a further sum of 10,608,629 shillings being payment in excess of the purchase price. In view of the finding that the sale was inoperative and of no effect no purchase price in fact was paid. The two sums were obtained from the C produce of the two farms of the appellant companies. This order of the judge cannot stand.

The appellants complained about the order of the judge that the crops of Nitin Coffee Estate and Rafiki Estate which are in stores awaiting delivery to TCGA and Coffee and other crops to be picked "this season" from the two farms D are the property of the respondents. Similarly this order of the judge cannot stand; all these crops belonged to the appellant companies.

The appellants complained about the award of 5 million shillings as general damages to the respondents. The E respondents on the other hand counterclaimed that, if damages for breach were to be awarded, the sum is too low. The judge had held that the agreement of sale was valid and enforceable, but instead of ordering specific performance, he awarded damages, in the exercise of his discretion, and for the reasons he gave. The appellant's F argument apparently was that since the agreement of sale was unenforceable and void, no breach had occurred, hence no damages should have been awarded for breach of contract. Superficially that argument is attractive. However, on the facts of this case Manik was led to believe that he had entered into a binding contract. At the G invitation of, and on the strength of the appellants representations Manik took over the farms and worked them for about 3 years. For two years before Manik took over, the farms were losing money. Manik by his work and diligence reversed the loss making trend and turned the farms into a profit making venture. He not only maintained H the farms but improved them. The appellant shareholders and directors were mostly away and could not work the farms, and in the state of fear and panic in 1983, they were in the process, probably, of neglecting them. The price agreed, 10 million shillings, was a ridiculously low sum, and that was clear evidence of a sale under distress or I duress. In about three years Manik managed to generate a sum of over 20

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A million shillings from the produce of the farms. The judge had awarded damages on the basis of unjust enrichment - divesting the appellants of such enrichment. The farm prosperity was brought about solely by the work and labour of Manik. Manik believed the representations made

to him by the appellants and on the basis of that belief worked B and improved the condition of the farms. Manik must be paid for his work and labour and for his contribution to the improved state of the farms.

I believe that the sum of 5 million shillings awarded by the judge was insufficient. I would award the respondents the C sum of 10 million shillings as compensation for the work and labour put into the farms, to the advantage of the appellants.

The cross-appeal has succeeded on this item of damages. The appellants have asked for an order that the respondents should render a full account of their stewardship of the farms during the period they have been in D occupation. I do not think such an order is called for at this stage. When the respondents will hand over possession of the farms to the appellants, an account will have to be taken as to how much the respondents had spent on the farms from the date of the filing of this suit in the High Court to the date of possession. In that process, I should think all the accounts can be dealt with.

E In the result I would allow the appeal to this extent. I would hold:

(1) that the oral agreement of sale was inoperative and of no effect in terms of Regulation 1948;

(2) that the sale of shares by 4th appellant and 5th appellant to the respondents was void for uncertainty and F is to be set aside;

(3) the order for the return of shs. 10 million purchase price and shs. 10,608,620 excess of the purchase price to be set aside. Similarly, the order concerning the crops of the two farms awaiting delivery to G TCGA and coffee and other crops to be picked "this season" to be set aside.

I would dismiss the other grounds of appeal.

H As regards the cross-appeal, I would increase the item of damages from 5 million to 10 million shillings. I would dismiss the other grounds of the cross-appeal.

On payment of Shs. 125,000 by the respondents to Anupkumar Ondhia of his nominee, 50 shares of the said I Anupkumar Ondhia in Nitin Coffee Estate Limited are to be transferred to Manik or his nominee.

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The appellants are to pay 5 million shillings being expenses incurred by Manik until the date of the filing of this suit in A the High Court and the sum of 10 million shillings as damages to the respondents. The appellants are also to refund the respondents the initial payment of 2 million 75 thousand shillings made by Manik for the purchase.

The respondents are to vacate the two farms at Oldeani and hand over possession of them to the appellants or their B nominees 30 days from the date of this judgment.

On or before such handing over an account has to be taken of the expenses incurred by the respondents on the said C farms from the date of filing the suit in the High Court to date of possession. Such sum as found due is to be paid by the appellants to the respondents.

As to costs, I would award half the costs of the appeal to the appellants. For the avoidance of doubt such costs are to be taxed on the basis of one counsel only. D

I would make no order for costs of the cross-appeal.

I would not disturb the order for costs made in the High Court.
As the other members of the Court agree, there will be judgment on the terms hereinabove stated. E
Order accordingly.
1988 TLR p215
G
[zRPz]SYKES INSURANCE CONSULTANTS LTD v NATIONAL BANK OF COMMERCE 1988 TLR 215 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Msumi J

28 October, 1988
Flynote
Landlord and Tenant - Rent Restriction Act - Conditions for the application of the provisions of the Rent Restriction Act. H
Landlord and Tenant - Landlord-tenant relationship - Tenant requests landlord to occupy premises for a specified period - Conduct of landlord throughout consistent with the existence of tenancy relationship - Whether landlord- tenant relationship created. I
1988 TLR p216
A Landlord and Tenant - Notice to vacate premises -Premises within rent restriction area - Protection offered to tenant -Rent Restriction Act.
Landlord and Tenant - Statutory tenancy - Landlord allows party to occupy premises for a specified period - No expressed tenancy agreement - Party retains possession after expiry of the specified period - Statutory tenancy created - B Rights of statutory tenant.
-Headnote
The suit premises had prior to the occurrence of the dispute been in the occupation of M/s Colin Hood Insurance C (T) Limited, a servicing
agent, as tenants of the respondent. The operation of the said servicing agent in Tanzania ceased after the National Insurance Corporation terminated their servicing agency. The said servicing agent then wrote the respondents requesting them to let the appellants occupy part of the suit premises in order to enable the appellants, within a D period up to the end of September, 1975, to assist in the winding up of the business of M/s Colin Hood Insurance (T) Limited. The respondents did not object to the request. The appellants went into occupation of the suit premises from October, 1974. Since then rent for the suit premises was paid by the appellants in their name. All receipts for E rent were issued in the name of the appellants and acknowledged by the respondents. In March, 1981 the appellants asked the respondents for two keys for the main entrance to the suit premises describing themselves as tenants of the respondents and the respondents obliged after being paid 250/= for the same.

F In March, 1982 the respondent served on the appellants three months notice to vacate the suit premises arguing that there was no tenancy agreement between them and the appellants and that the appellant's occupation of the premises was purely on temporary arrangements. In an action by the appellants before the resident magistrate court, G Dar es Salaam, for a declaratory judgment that they were the respondent's lawful tenants, the learned trial Magistrate held that the alleged tenant-landlord relationship was of a temporary nature intended to last after the completion of a specific task, which was to enable the appellants to assist in winding up the activities of the former H tenants, that is M/s Colin Hood Insurance (T) Limited. The trial magistrate further held that the said temporary tenancy had been effectively terminated by the respondent's notice to vacate.

It was common knowledge that there was no expressed tenancy agreement and that the appellants retained I possession after expiry of the specific period granted them to assist in the winding of the affairs of M/s Colin Hood Insurance (T) Limited.

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MSUMI J

Held: (i) In order for the provisions of the Rent Restriction Act to be applicable two factors must be established first A there must exist a landlord-tenant relationship. The occupation of a premise under some arrangements other than that of a landlord and tenant does not fall under the provisions of the Act. Secondly, the suit premises must be situated within a rent restriction area; B

(ii) the conduct of the respondents has throughout been consistent with the existence of tenancy relationship between the parties. Through their conduct the respondents accepted the appellants as their tenants;

(iii) one of the protections enjoyed by protected tenants is that they can only be evicted from the suit C premises for statutory misconducts as prescribed under the Rent Restriction Act or when the suit premises are required by their landlords for their use and the tenants have been offered alternative accommodation;

(iv) there is nothing like temporary or permanent tenancy in law. Tenancies are either for specific periods, D which may be short or long, or for some undeterminable period with right of termination explicity or impliedly reserved by each party. Since there has been no expressed tenancy agreement the parties are deemed to be in a statutory tenancy as prescribed under section 32(1) of the Rent Restriction Act; E

(v) consequent upon their retaining possession of the suit premises after the end of the specific period during which they were allowed to occupy the suit premises, the appellants became statutory tenants under section 32(1) of the Rent Restriction Act. As statutory tenants they become entitled to the protection of the relevant provisions of the F Rent Restriction Act and to the benefits and rights enjoyed by the former tenants under the original tenancy agreement.

Case Information

Appeal allowed. G

Ismalil, for Appellants

Mjasiri, for Respondents.

[zJDz]Judgment

Msumi, J:. This appeal is against the decision of the Resident Magistrate Court, Dar es Salaam. The subject matter H is a house belonging to the respondents. Appellants have been in occupation of the suit premises from October 1974. Before then the said premises were in the occupation of one M/s Colin Hood Insurance (T) Limited (henceforth referred as the former tenants). Before the appellants occupied the premises the former tenants wrote I the

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MSUMI J

A respondents requesting them to let the appellants occupy the premise in order to enable them (the appellants), within a period up to the end of September 1975), execute work left pending by the former tenants. The operation of the business of the former tenants in Tanzania ceased after the National Insurance Corporation of Tanzania B terminated their servicing agency. As far as material this is what the letter said:

As you are aware the National Insurance Corporation of Tanzania have terminated the servicing Agency of M/s Colin Hood Insurance (T) Limited but they have requested that we carry on servicing business put through before the 1st of October, C 1974 up to the end of 1975.

In order that we carry out our commitments we have made arrangements with a newly formed company to take over all D forthcoming renewals and new business that previously would have been put through Colin Hood Insurance (T) Limited and for them also to service the business up to the end of September, 1975. In order that the new company, Sykes Insurance E Consultants Limited, can assist my company in servicing these clients and at the same time assist in the winding up of the company it will be necessary for them to occupy part of our office accommodation.

F We would therefore be grateful to have your confirmation that you have no objection to M/s Sykes Insurance Consultants Limited occupying part of our offices in order to carry out this very necessary task where the winding up of Limited Liability Companies are concerned.

G This letter which was tendered as Exh. D1 was accordingly acknowledged receipt and replied by the defendants in a letter dated 5th November 1974 produced in court as Exh. B1. The material portion of the reply says:

H Kindly be advised that we have no objection to M/s Sykes Insurance Consultants to occupy part of your offices provided they follow and abide to our Housing rules.

I Since then rents for the suit premises have been paid by the appellants in his name. All receipts for rents were issued in the

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name of the appellants. However, by a letter dated 30th March 1982 (produced as Exh. D2) respondents gave the A appellants three months notice to vacate the premises arguing that there is no tenancy agreement between them and the respondents and their occupation of the premises was purely on temporary arrangements. This is what they said:

"Dear Sir, B

RE:NOTICE TO VACATE FROM OFFICE PREMISES ON 3rd FLOOR OF BANK HOUSE BUILDING C

We have learnt that you were allowed by the Bank to occupy the said office premises formerly occupied by M/s Colin Hood Insurances (T) on temporary basis in order for you to finalise the work left by the termination of the latter's services as D Insurance Agent by the National Insurance Corporation late 1974. No formal lease was however prepared for your execution as the whole arrangement was purely a temporary one and you were expected to hand over the premises back to the Bank E immediately you finalised M/s Colin Hood's pending assignments. It has been brought to our knowledge that you are still in possession of the said premises to date. We have now been instructed to give you THREE MONTHS NOTICE from the date hereof, which we hereby do, to vacate the said premises and hand over vacant possession to the Chief Manager Bank F House Branch Dar es Salaam or Chief Manager Administrative Services Dept. in clean tenantable order. Kindly hand over the keys to him/them on or before the expiry of this notice period. Your liability to pay rent shall cease at the expiry of this notice G and any arrears must be paid forthwith.

This notice was followed by another one which required the appellants to vacate the premises immediately. Consequently appellants filed a suit in the Resident Magistrate Court praying for: H

1. Declaratory Order that they are the lawful tenants of the defendants in respect to room 1 - 9, 2nd Floor Bank House Building, Dar es Salaam.

2. Permanent Order of injunction to restrain the defendants from harassing the Plaintiffs. I

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A 3. Payment of the rent into court at the defendants' cost in event of further refusal to accept the same.

4. Cost of this suit.

5. Such further and other reliefs as may be deemed just and proper by this Honourable Court.

B In their written statement of defence, respondents strongly contested the allegation that appellants were legal tenants of the suit premises hence prayed for dismissal of the suit. Before the trial began the parties agreed that there C was only one issue in dispute, namely, whether the plaintiffs/appellants are legal tenants of the suit premises. The learned trial magistrate answered this issue in the affirmative. This is what he said:

..... it is clear in my mind that the plaintiffs were accepted by the defendants as tenants and their relationship can only be D described fairly as a tenant-landlord relationship. In that event therefore I rule that the plaintiffs were lawful tenants of the defendants.

E However, the learned trial magistrate was of the considered view that the alleged tenant-landlord relationship was of a temporary nature intended to last after a completion of a specific purpose which was to enable the appellants to assist in winding up the activities of the former tenants. The learned trial magistrate farther held that the said F temporary tenancy had been

effectively terminated by the alleged notice which required the appellants to vacate the suit premises. This appeal is against the said decision of the trial court.

The learned counsel for the appellants submitted five grounds in support of the appeal. In the first ground he argued G that the learned trial magistrate misdirected himself at law by holding that appellants were not protected by the Rent Restriction Act. The remaining grounds are basically supplementary to the first ground. The determination of this appeal thus depends on the merits or demerits of the said first ground of appeal. In order for the provisions of H the Rent Restriction Act to be applicable two factors must be established. First there must exist a landlord- tenant relationship between the parties. An occupation of premises under some arrangements other than that of a landlord and a tenant does not fall under the provisions of the Act. Hence it has been held by this court in K.Y. Juma v Juma I Mwango [1973] LRT n.9 when El-Kindly J. observed, inter alia:

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MSUMI J

.... The second ground of appeal is more relevant in this appeal as it is the one that controls the first ground of appeal. Do the A provisions, or any of them of the Act apply in this case? As I have said the Act is only applicable where there is a relationship of landlord and tenant .....

As noted earlier, the learned trial magistrate made a specific finding that there is in existence a landlord - tenant B relationship between the respondents and appellants. With respect, I fully agree with him. Respondents' persistent denial that appellants are not legal tenants of the suit premises is unsupported by both facts and law. After they had C let the appellants occupy the suit premises for the period up to the end of September 1974 as requested by the former tenants, respondents, through their conducts, accepted them as their tenants. For example for about nine years respondents have been accepting rents from the appellants and issuing receipts in their name. Furthermore when communicating with appellants, they have been addressing them as the tenants of the suit premises. For D example on 3rd August 1982 respondents wrote to the appellants notifying them of their intention to raise the rent after the suit premises had been inspected by Government valuers. The heading of that notice reads "NOTICE TO INCREASE RENT PROPERTY LEASED TO TENANTS". And after the new rent had been fixed by the Rent E Tribunal, respondents notified the appellants and demanded from them a total of shs. 6,770/= being difference between the new and old rent for the period from 1st March 1983 to 31st December 1983. Appellants paid this F amount and respondents acknowledged receipt of the same. Then there is a letter dated 5th March 1981 written by the appellants to respondents asking for two keys for the main entrance to the suit premises. That letter which was produced by the appellants as Exh. D3, as far as material, reads: G

We are your tenants occupying Room Numbers 1 to 9 on second Floor of Bank House, Independence Avenue, and since most of our staff often work late in the evening we should be most grateful if you would let us have two keys for the main H entrance as soon as possible (emphasis supplied).

Respondents did not cntrovert the truth of the above underlined sentence. That would have been a proper opportunity for the respondents to restate their relationship with the appellants as far as the suit premises are I concerned. But on the contrary, respondents

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A gave the appellants the required two keys after they were paid shs. 250/= for the same. All in all, except for the controversial notice for vacating, the conducts of the respondents have been throughout consistent with the existence of tenancy relationship between the parties.

B The second factor which must exist in order for the provisions of the Act to apply is the situation of the suit premises within the area to which the Act applies; which is technically known as rent restriction area. The whole area within Dar es Salaam city is a rent restriction area as per section 3(1) of the Act. Since it is clear that the parties are C in the relationship of landlord and tenant and the suit premises are within the rent restriction area, the answer as to whether the provisions of the Act are applicable in this case must be in the affirmative form. This means that as tenants, appellants are fully protected by the provisions of the Act. One of such protections is that they can only be D evicted from the suit premises for statutory misconducts as prescribed under the Act or when the premises are required by the respondents for their own use and appellants have been offered alternative accommodation. It would appear the learned trial resident magistrate was aware of these rights hence explains his specific finding that E appellants cannot benefit from the provisions notwithstanding the fact that they are tenants of the suit premises. In coming to this finding the learned trial magistrate argued that the tenancy relationship existed between the parties at any time. With respect this argument is novel both factually and legally. As quite rightly submitted by the learned F counsel for the appellants that there is nothing like temporary or permanent tenancy known in law. Tenancies are either for specific periods, which may be short or long, or for some undeterminable period with right of termination explicitly or impliedly reserved by each party. As for this case, the first understanding was that the tenancy was to G last up to the end of September 1975 when the pending insurance servicing work and the process of winding up of the business of the former tenants would have been completed. But as amply demonstrated earlier, after the end of September 1975 respondents went on to accept the appellants as their tenants. Since there has been no expressed H tenancy agreement, the parties are deemed to be in a statutory tenancy as prescribed under 32(1) of the Act (equal to section 26(1) of the repealed Act) which says:

I .... tenant who, under the provisions of this Act, retains possession of any premises shall so long as he retains

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possession, observe and be entitled to the benefit of all the terms and conditions of the original contract of tenancy, so far as A the same are consistent with the provisions of this Act....

In this case there has been no dispute from the respondents on the legality of appellants' initial occupation of the suit premises. And there has been no suggestion, and I can find no basis for

such suggestion, that the occupation of the B suit premises by the appellants was done contrary to the provisions of this Act. Hence consequent to his retaining possession of the suit premises after the end of September 1975 appellants became statutory tenants under section 32(1) of the Act and accordingly entitled to the protection of the relevant provisions of the Act. And farthermore C appellants are entitled to the benefits and rights enjoyed by the former tenants under the original tenancy agreement.

In their defence respondents are claiming that up to the time when they issued the appellants with notice to vacate D the suit premises, they were of the understanding that the former tenants were still in occupation of the premises. With respect, I don't think that respondents are serious on this claim. They have been corresponding with the E appellants in respect of the suit premises all this time. And as pointed out earlier, appellants, in the letter dated 5th March 1981 addressed to the respondents have lamely argued that appellants have been corresponding with the Bank House Branch as opposed to the Head Office of the respondents' corporation. Again this contention is not F worthy of serious consideration. To my understanding the National Bank of Commerce means and includes all its various branches and institutions. None of these branches enjoys separate legal entity from that of the National Bank of Commerce as a corporation. This means that the acts of these branches are the acts of the corporation as a body. But even if one was to be charitable enough as to accept the respondents' argument, respondents would still be held G bound by the various communications between the so called Bank House Branch and the appellants on the theory of principal/agent relationship. By his conducts, respondents have created reasonable impression to the appellants H that for the purposes of matters pertaining to the tenancy of the suit premises, the Bank House Branch office was their agents. For example, for the whole of this period the said branch office has been collecting rents of the suit premises with acknowledgement of the respondents. And after the Head Office had written the appellants notifying I them of their intention to raise rent, there followed letters

A by the said branch office informing the appellants of the arrangements for valuation of the suit premises, the subsequent new rent and the total arrears of rent being the difference between the old and new rent.

B Lastly, with respect, I appreciate the efforts made by the learned trial magistrate to support his decision to grant respondents vacant possession of the suit premises by citing a couple of court decisions. But with even greater respect, those decisions have no relevancy to the facts of this case. For example in Abdull Azizi v Hadija Salum [1980] TLR 22 my learned brother Mwakasendo, J., as he then was, was considering the right of a landlord to C repossess his premises for his personal use and his obligation to offer the tenant with alternative accommoation. In the present case there had been no specific prayer in the pleadings that respondents needed the suit premises for his own use. The sole ground advanced by them for vacant possession is their claim that appellants are not their tenants. D Hence the learned trial magistrate's finding that defendants have not "attempted to diligently look for an alternative accommodation" is, to be mild, quite extravagant.

In conclusion this appeal succeeds with costs. As per prayers, appellants are declared to be the lawful tenants in the E suit premises and respondents are hereby permanently restrained from harassing them.

Appeal allowed.

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G

[zRPz]NATIONAL BANK OF COMMERCE v PERMA SHOE COMPANY 1988 TLR 224 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Makame JJA, Kisanga JJA and Omar JJA

29 November, 1988

Flynote

H Banking - Collecting banker - Cheque lost in the course of collection - Whether there is a duty on banker not to be negligent - Extent of such duty.

Negotiable Instruments - Cheque - Lost in the course of collection - Banker's duty of care to customer - Extent.

I Negotiable Instruments - Cheque - Lost in the course of collection

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KISANGA JJA, MAKAME JJA AND OMAR JJA

- Customer's right to compensation on ground of depreciation of value of money. A

-Headnote

The respondent presented his cheque to the appellant bank for collection. The bank credited the customer's account on 18.6.1982. More than a year later the appellant informed the respondent that the cheque was lost in transit and B required it to get a fresh cheque from the drawer. It was not possible to get another cheque from the drawer since he had left the country. The respondent sued the appellant claiming damages for loss of the cheque and compensation for depreciation in value of the shilling due to devaluation of the Tanzania shilling. The High Court C decided in favour of the respondent allowing damages and compensation.

On appeal, the appellant challenged the decision of the High Court arguing that the bank had no duty of care towards the customer in respect of the cheque presented for collection. The amount of compensation in the sum of D shs. 50,000/= for depreciation was attacked as being excessive.

Held: (i) Where a customer deposits a country cheque with a collecting bank and the cheque gets lost, the bank E owes a duty of care to the customer to inform him promptly of such loss so that the customer may take such appropriate steps that might be open to him to avert any or further consequences resulting from such loss;

(ii) that duty exists whether the cheque was lost by the bank itself or by a third party having possession thereof on behalf of the bank; F

(iii) the imposition of such a duty of care will not throw the banking system into disorder or prove socially hazardous;

(iv) the trial judge made the compensation award on a correct principle. He was entitled to take into account G the changes in the purchasing power of money due to depreciation and devaluation of the shilling.

Case Information

Appeal dismissed.

Rutabingwa, for the Appellant H

Rweyemamu, for the Respondent

[zJDz]Judgment

Kisanga, Makame and Omar, JJ.A.: This appeal arises from the decision of the High Court (Mwalusanya, J.) allowing a claim for damages by the respondent company against the appellant I

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A bank for the loss of a cheque drawn in favour of the respondent company. The High Court awarded shs. 34,500/- being the amount stated on the lost cheque, and a further shs. 50,000/- being compensation for the depreciation in value of the former sum due to devaluation of the Tanzania Shilling.

B The facts of the case were scant, but as far as could be ascertained from the record they may be stated as follows: The Kashozi branch of the appellant bank at Bukoba accepted a country cheque for shs. 34,500/= deposited by the respondent company and credited the respondent's account with the amount of the cheque. The C bank claimed that in the meantime it sent the cheque to its branch upcountry at Ngara, in the same region of Kagera, to be debited against the drawer who maintained an account there. After some 461 days the bank notified the respondent that the cheque was lost while in transit with the post office, and required the respondent to ask the D drawer to issue a fresh cheque of an equal amount. The respondent on the other hand claimed that upon making enquiries, it could not trace the drawer, adding that in any case it was not obliged to look for the drawer but rather it was the obligation of the bank to do so. Whereupon the bank proceeded to debit the respondent's account with the E amount of the cheque, and hence the filing of the suit by the respondent. The High Court found that the bank had been guilty of negligence in failing to notify the respondent promptly of the loss of the cheque.

In this appeal the bank is represented by Mr. J.K. Rutabingwa while the respondent is represented by Mr. J.S. F Rweyemamu. The same advocates had represented the respective parties at the trial in the High Court. In arguing the appeal, Mr. Rutabingwa criticised the trial judge for finding negligence on the part of the bank. He contended that on the evidence the cheque was lost not by the bank but by the post office while in transit from Bukoba to G Ngara, and that in law the bank owed no duty of care to the respondent to promptly report to it the loss of the cheque. On the first limb of counsel's submission, it seems plain in the circumstances of this case that the onus is on H the bank to prove that the cheque was lost not through its own negligence but by the post office. But the only evidence adduced on that point was that of D.W.1, the Kashozi branch manager, to the effect that the cheque was sent to Ngara by

registered post No. 936 and that it was lost while in transit. Quite clearly such a bare assertion was I not at all sufficient to prove loss by the post office. No certificate of posting from the post office was produced to support the assertion that the cheque was sent to Ngara

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by registered mail No. 936, nor did anyone from the post office at Bukoba come to confirm the posting of the A alleged register. On the other hand it could well be that the alleged register containing the cheque was, in fact, posted as alleged and reached Ngara, but no one was called from the Ngara branch to say that the cheque was not duly received there. In the circumstances, therefore, it has not been established that the cheque was lost by the post B office, and in the absence of any other explanation, the bank was rightly found to have lost the cheque through negligence.

Submitting on the second limb on the issue of negligence, learned counsel contended that a collecting banker's C liability in negligence is limited to two situations only, namely: (1) At the time of opening a customer's account when the bank has to exercise care in order to be satisfied as to the character of the customer, and (2) At the time of paying the proceeds of the cheque when the bank must ensure that it does not pay the same to strangers. He D strongly maintained that the liability in negligence of a collecting banker, which is what his client was, has not been extended beyond these limits. The trial judge addressing himself at great length to this aspect of the case, had held that the bank owed a duty of care to the respondent to promptly report to it the loss of the cheque, and that the E bank was in breach of that duty. In coming to that conclusion, the learned judge reviewed a number of decisions from various jurisdictions of the Commonwealth. He cited, among others, the decision of the House of Lords in Anns v Morton London Borough Council [1978] A.C. 728, restating the test to be applied when deciding F whether or not a duty of care arises in a particular situation, and the judgment of the Supreme Court of Nigeria in Agbonmagbe Bank Ltd. v C.F.A.O. [1966] I ALR Comm. 238; (Alan Milner and Susan Abrahams - Modern African Banking Cases 1973 Ed. p. 190) in which it was held that the bank owed its customer a duty of promptly sending him notice of dishonouring of cheques drawn in his favour. The learned judge also stated that he saw no G policy considerations which required that the scope of the duty so imposed on the collecting bank ought to be limited or qualified. For, in his view, such a duty will not throw the banking system into disorder or prove socially hazardous. We think that, the learned judge properly directed himself in the matter. We cannot agree with Mr. H Rutabingwa that the collecting banker's liability in negligence is limited only to the two situations as set out in his submission. We are firmly of the view that where, as in this case, a customer deposits a country cheque with a collecting bank and the cheque gets lost, I

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A the bank owes a duty of care to the customer to inform him promptly of such loss so that the customer may take the appropriate steps that might be open to him to avert any or further consequences resulting from such loss. That duty we think, exists whether the cheque was lost

by the bank itself or by a third party having possession thereof on B behalf of the bank. Like the trial judge, we are also of the view that the imposition of such a duty of care will not throw the banking system into disorder or prove socially hazardous. On the contrary we think that the imposition of that duty will serve to re-affirm and enhance the confidence of the public in the banking system in as much as it seeks C to ensure a greater degree of security for the customer's money at the bank.

Mr. Rutabingwa further contended that even if the bank had a duty to promptly notify the respondent of the loss of the cheque, the bank was not in breach of that duty. It will be recalled that the bank notified the loss after 461 days D of the issue of the cheque. Counsel claimed that the loss of the cheque was detected only after what he described as the routing slip had travelled all the way from the Bukoba branch to the Central Clearing House in Dar es Salaam, to the Ngara branch, back to the Central Clearing House in Dar es Salaam and then back to the Bukoba branch. He E stated that this long journey took a long time because of the communication problems with Ngara which existed at the time. However, there was not a shred of evidence adduced of any communication problems with Ngara existing at the time. Nor was evidence given of any routing slip showing when it was dispatched from the collecting bank at F Bukoba and when it was received back there. In those circumstances the period of 461 days was clearly an inordinate delay in reporting the loss of the cheque, and the trial judge was perfectly justified to hold the bank liable in negligence.

G In another dimension counsel for the appellant bank took the view that the respondent company was itself to blame in the matter for having neglected to require the drawer of the cheque to issue a fresh cheque in place of the H lost one as provided for under section 69 of the Bills of Exchange Ordinance (Cap. 215). That section provides:

> 69. Where a bill has been lost before it is overdue, the person who was the holder of it may apply to the drawer to give him another bill of the same tenor, giving security to the drawer if required to indemnify him against all persons whatever in case I the bill alleged to have been lost shall be found again.

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> If the drawer on request as aforesaid refuses to give such duplicate bill he may be compelled to do so. A

Learned counsel contended that at the time the cheque was lost the respondent was the holder of the cheque and that the cheque itself was not overdue. As such, therefore, the respondent was in a position to take the necessary B step in terms of the section to put the situation right. Mr. Rweyemamu for the respondent, however, submitted that at the time the cheque was lost the bank, not the respondent, was the holder of the cheque, and that the cheque itself was long overdue, in which case his client could not validly be expected or be called upon to take any steps in terms C of the section in order to rectify the matter.

The trial judge in his judgment had dealt with the question who was the holder of the cheque, and he came to the conclusion that it was the bank. In the course of dealing with that issue he

considered, first, the provisions of section D 27(2) of the Bills of Exchange Ordinance (Cap. 215) which provides that:

(2) Where value has at any time been given for a bill the holder is deemed to be a holder for value as regards the acceptor and all parties to the bill who became parties prior to such time. E

Applying that provision to the facts before him, the learned judge found that the bank had given value for the cheque first by crediting the respondent's account with the amount of the cheque and second by impliedly agreeing that the F respondent could draw against the cheque before the proceeds thereof were received. Mr. Rutabingwa submitted that mere crediting of the respondent's account with the amount of the cheque did not amount to giving value for the cheque. In this respect he referred, inter alia, to the English case of A.L. Underwood Ltd. v Bank of Liverpool G and Martins [1924] 1 K.B. at page 805 where it was held that:

... the mere fact that the bank in their books enter the value of the cheques on the credit side of the account on the day on which they receive the cheques for collection does not without more constitute the bank a holder for value. To constitute value H there must be in such a case a contract between banker and customer, express or implied, that the bank will before receipt of the proceeds honour cheques of the customer drawn against the cheques. Such contract can be established by I course of

A business and may be established by entry in the customers pass book, communicated to the customer and acted upon by him.

B But the point is that in the instant case the trial judge found that the bank did more than just crediting the respondent's account and the question is whether that finding was justified.

It was common ground that the bank had discretion whether or not to credit the respondent's account with the C amount of the uncleared cheque. Then there was the evidence of the branch manager of the appellant bank (D.W.1) to the effect that for a good customer the bank credits the account straightaway on depositing the cheque, but for a bad customer it does not. In this particular case, the witness said, the respondent was a good customer with no problems and so the bank credited its account straightaway with the amount of the cheque. Indeed, the witness D added, the bank had recently given the respondent a loan to develop its business. Such evidence clearly suggests that the bank considered the respondent to be a reliable and creditworthy customer to whom credit facility could be extended without difficulty. Again it was undisputed that after crediting the respondent's account, the bank kept E silent for a whole year while the respondent continued to operate its account. For all that period there was no evidence of any restriction or limitation imposed by the bank on the respondent to make withdrawals against its account to the extent of the uncleared cheque. By keeping silent for so long the bank clearly led the respondent to F believe that all was well and that it could proceed to draw on its account to the extent of the cheque. The view that the bank had given credit to the respondent as aforesaid appears to be confirmed by a letter (Ex.B) which the bank G wrote to the respondent in the course of this matter. The relevant part of that letter reads:

CHEQUE NO. G.027808 OF SHS. 34,500/= DEPOSITED INTO YOUR ACCOUNT 18.6.1982

H On 18.6.1982 you deposited cheque No. 027808 of Shs. 34,500/=. The cheque was drawn by one of your clients from Ngara. It has come to our attention that the cheque got lost on transit. We cannot recover our money from the drawer of the cheque because it is not debited to his account with our Ngara branch. We are intending to debit your account with Shs. 34,500/= on I 1st October, 1983. You are required to obtain a

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fresh cheque from the drawer and ask him to place stop-payment order with his bankers in Ngara for the lost cheque. A

It would seem to us that the expression "We cannot recover our money from the drawer" is a clear admission that the bank had parted with its money in favour of the respondent, and it was now facing a difficulty in recovering the same. For, it is not possible to talk of recovering something when that thing was not lost or was not parted with in B the first instance.

As stated earlier the trial judge in effect found that the bank had impliedly allowed the respondent to draw against the uncleared cheque in anticipation of the proceeds thereof being received. To that extent the bank had given value C for the cheque, thereby entitling it to have a lien on the cheque. Then he went further and considered the provisions of section 27 (3) of Cap. 215 which says that:

(3) Where the holder of a bill has a lien on it arising either from contract or by implication of law, he is deemed to be a holder D for value to the extent of the sum for which he has a lien.

He found that since the bank had a lien on the cheque to the full amount thereof, then the bank was accordingly E deemed to be the holder for value of the cheque. We think that his reasoning and conclusions were sound. It therefore follows that Mr. Rutabingwa's submission that the respondent was to blame for failing or neglecting to F require the drawer to issue a fresh cheque in terms of section 69 of Cap. 215 must fail because the respondent was not the holder of the cheque at the material time, and so it could not rightly be asked to take the steps as contemplated by that section.

Mr. Rweyemamu's second limb of this submission was that even assuming that the respondent was the holder of the G cheque at the material time, the respondent was not in a position to do anything in terms of section 69 to secure the issuing of a fresh cheque because the drawer of the cheque could no longer be traced, and the cheque itself was long overdue. We find some merit in this submission. P.W.1 in his evidence stated that he tried by letter to contact H the drawer of the cheque but was told that he was out of the country to Arabia. That evidence stood unchallenged. The defence never adduced any evidence to show that the drawer of the cheque never left the country or that he left but returned afterwards. In the circumstances the bank cannot validly complain that the respondent I

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A failed or neglected to require the drawer to issue a fresh cheque when it is not established that the drawer himself was available.

On the submission that the cheque was overdue, Mr. Rweyemamu relied on the provisions of section 40 (1) and (3) and section 45 of Cap. 215. Section 40 (1) and (3) provides that:

B 40. (1) Subject to the provisions of this ordinance, when a bill payable after sight is negotiated, the holder must either present it for acceptance or negotiate it within a reasonable time.

(2) ....

C (3) In determining what is a reasonable time within the meaning of this section, regard shall be had to the nature of the bill, the usage of trade with respect to similar bills, and the facts of the particular case. And the relevant part of section D 45 says:

45. Subject to the provisions of this Ordinace a bill must be duly presented for payment if it be not so presented the drawer and endorsers shall be discharged.

E Mr. Rweyemamu submitted that according to these provisions the cheque in the present case ought to have been presented for payment within reasonable time. This, however, was not done and consequently the drawer was thereby discharged. So that even if the respondent was the holder of the cheque at the material time, that would be F of no avail in as much as the cheque was stale then. The difficulty we are facing here is that no evidence whatever was adduced as to what is reasonable time for pesenting the cheque for payment according to the banking practice in Tanzania. Mr. Rweyemamu was of the view that a cheque becomes stale after six months from the date of its G issue. Mr. Rutabingwa, on the other hand, asserted that once a cheque is duly stamped by the collecting bank, it can never became overdue or stale. We do not feel justified to decide this issue purely on the basis of the statements H made from the Bar. We are rather inclined to defer our decision in the matter to a future date when a suitable case comes up in which the necessary evidence shall have been adduced. It should be noted, however, that our decision on this point was not essential for the determination of this appeal. It is clear from the preceding pages of this I judgment that the appeal is disposable on other grounds.

We are therefore unable to uphold Mr. Rutabingwa's submission that the respondent was to blame for failing or A neglecting to take steps under section 69 to require the drawer of the cheque to issue a new cheque. Like the trial judge we find that the bank, and not the respondent, was the holder of the cheque at the time the cheque was reported lost. As such the respondent could not, in terms of section 69, require the drawer of the cheque to issue a B fresh cheque. We also agree with Mr. Rweyemamu's submission that the taking of steps by the respondent under section 69, as submitted by counsel for the appellant bank, appears to have been rendered impracticable by the fact that the drawer of the cheque could no longer be traced as he was said to be away in Arabia. The learned judge, C therefore, was justified in finding against the appellant bank on the basis of negligence, and we can see no reason to interfere.

Mr. Rutabingwa also complained about the part of the award relating to Shs. 50,000.00 and said that there was not D ground on which it was based. In awarding that sum the trial judge took

into account the element of depreciation of money due to the devaluation of our shilling. The respondent had been deprived of the use of his money for a period of four years from 1983. At the end of that period his money would fetch less goods because of its E diminished purchasing power. The learned judge, therefore, made the award in order to compensate the respondent such that as far as possible it could be in a position to buy the same amount of goods as it would have bought has it not been deprived of its money. We think that the learned judge made the award on a correct principle. He was F entitled to take into account the changes in the pruchasing power of money due to depreciation and devaluation of the shilling. That was a practical aspect of life which we think it would have been unrealistic to ignore. Although he did not set out any mathematical formula on which he computed the award, we think that the sum of Shs. 50,000.00 was not excessive so as to warrant interference. G

After a careful consideration of the issues involved in this appeal and the engaging arguments by counsel for both sides, we are satisfied that the learned judge properly directed himself on the issues before him and came to the right conclusions. Admittedly the facts as adduced at the trial were most scanty. In the whole case only two witnesses H gave evidence, one for the plaintiff and one for the defendant. Their evidence was very brief, hardly a page each. That was not fair for a case involving issues of this magnitude. However, the trial judge did his very best in the circumstances and, on the evidence before him, his decision cannot be faulted. In the I

A result the appeal fails and it is dismissed with costs.

Appeal dismissed.

B

[zRPz]JOHN CHIZE BAHINGANYI v REPUBLIC 1988 TLR 234 (HC)

Court High Court of Tanzania - Tabora

Judge Chipeta J

C 30 November, 1988

Flynote

Criminal law - Malicious damage to property - When defence of bonafide claim of right is available.

-Headnote

D The appellant and the complainant were allocated plot numbers 234A and 235A respectively. Both started to develop plot number 235A. That triggered off a serious dispute and each of them referred the matter to the authorities claiming to be declared the true owner of plot no. 235A. The appellant thereafter pulled down the gate to E plot no. 235A which was erected by the complainant.

The appellant was charged with and convicted of malicious damage to property. On appeal the Court considered whether the defence of bonafide claim of right was open to him.

F Held: (i) The defence of bonafide claim of right, embodied in section 9 of the Penal Code, is only available where the claim of right is fairly, honestly and reasonably held having regard to all facts and circumstances;

G (ii) on the facts and circumstances revealed in this case the appellant's alleged claim of right was no more than a colourable pretext for a wilful and unlawful act.

Case Information

Appeal dismissed.

H Tendwa, for the Republic.

[zJDz]Judgment

Chipeta, J.: The appellant, John Chize alias Bahinganyi, was jointly charged with another, who was acquitted, with I the offence of malicious damage to property c/s 326(1) of the Penal Code. The appellant was convicted as charged and sentenced to pay a fine of

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CHIPETA J

Shs. 17,000/= or seven months imprisonment. He now appeals. A

The prosecution's evidence is to the following effect, one Taiba alawi Shariff (P.W.6) applied for a plot to construct a building in Kigoma-Ujiji Township. At about the same time, the appellant also applied for one. It would appear that each of them preferred to be allocated a plot in a particular area, that is, the parcel of land lying between B Kigoma Post Office and Kigoma Community Centre where there are two plots.

The Urban Planning Committee of the Town Council approved the two applications. The appellant was then allocated Plot No. 234A following the normal routine of allocating plots seriatim. That was on 20th October, 1987, C (See Exhibit P.3). Next day the appellant paid land rent and other charges for Plot No. 234A.

On 3rd November, 1987, P.W. 6 was allocated the next plot, that is Plot No. 235A, and on 6th November, 1987, she paid land rent and other charges for that Plot. The only difference between the two plots is that Plot No. 234A D faced Kigoma Primary School while Plot No. 235A faces Railways Quarters.

Thereafter it would appear that both P.W.6 and the appellant started developing the same plot, namely, Plot No. 235A, for no apparent reason. E

On his part, the appellant started clearing Plot No. 235A while P.W. 6 fenced off that same plot and fixed a gate at the entrance to the plot. That triggered off a serious dispute between the parties and each of them referred the matter to the authorities claiming to be declared the true owner of Plot No. 235A. F

While this dispute raged on, on 25th April, 1988 the appellant went to the site and found a servant of P.w.6 on Plot No. 235A arranging bricks. After looking around briefly, and without saying a word to that servant the appellant left. Soon thereafter, the appellant returned with a lorry loaded with sand. The appellant and the turnboy then pulled G down the gate to Plot No. 295A and the lorry offloaded the sand onto that plot. That done, the appellant ordered the driver of the lorry to smash the remaining part of the gate. The driver obeyed; he drove the vehicle in reverse gear and smashed the remaining part of the gate using the rear end of the lorry. H

The matter was then reported to police and the appellant was arrested and later charged accordingly. The appellant did not dispute most of these facts. All he said was that he was allocated a plot and later he heard that that plot had been allocated to P.W.6. So he wrote a letter to the authorities to complain. I

The learned trial resident magistrate carefully examined the

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CHIPETA J

A evidence and considered the legal issues involved. In the end, he was satisfied that the prosecution had proved its case beyond reasonable doubt in that the defence of bona fide claim of right was not available to the appellant in the circumstances.

B During the hearing of this appeal, Mr. Tendwa, learned senior state attorney, declined to support the conviction. In his submission, the appellant had a bona fide claim of right which was a defence to the charge.

It is certainly the law that if a man, genuinely believing that he has a right to damage the property of another on the C ground that he has a bona fide claim of right, so damages such property, then such person has a defence to a charge of malicious damage to property. It matters not that such belief was unfounded in law. (See Kandege vR., [1968] H.C.D. 398, and Athumani v R. [1967] H.C.D. 147). In order to prove a charge of malicious damage to property, D therefore, it must be proved that the accused wilfully and unlawfully caused the damage. (See Yusufu Hussein v R. [1969] H.C.D. 16)

However, this defence of bona fide claim of right is not available in every conceivable case. This defence, which is embodied in section 9 of the Penal Code, is only available where the claim of right is fairly, honestly and reasonably E held having regard to all the facts and circumstances. |t is, therefore, a question of fact. As Onyiuke, J. stated in the case of D.P.P. v Henry Rwegashamiza, [1973] LRT n.15, at page 63:

F A person who asserts a claim of right must be acting honestly, that is to say, that he honestly believes in the right he asserts. If however, the claim is merely a colourable pretext for a fraudulent act then the alleged claim of right cannot avail him. That is a question of fact.

G With respect, I entirely agree with that statement of principle. In cases of malicious damage to property, therefore, if the alleged claim of right is merely a colourable pretext for a wilful and unlawful act of damaging property, the defence of bona fide claim of right will not be available to such accused person.

H In the instant case, the appellant knew very well that Plot No. 235A was seriously in dispute. He himself took up the matter with as high up as the Minister for Lands, Natural Resources and Tourism. He was also aware that he had been allocated Plot No. 234A while P.W.6 had been allocated Plot No. 235A - the one in dispute, and by his I own admission, he was aware that the gate had been erected

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by P.W.6. Then there was the conduct of the appellant. Having removed part of the gate to gain ingress, he went on A to smash the remaining part of the gate.

On the facts and circumstances revealed in this case, and with unfeigned respect to the learned senior state attorney, I am of the view that the appellant's alleged claim of right was no more than a colourable pretext for a wilful and B unlawfl act. The defence of bona fide claim of right was not, therefore, available to the appellant.

Accordingly, I hold that the appellant's conviction was rightly deserved.

With regard to the sentence, it was by no means excessive, for the offence attracts a maximum sentence of seven C years imprisonment. In my view the appellant was treated with some leniency in that he was given the option of a fine. The learned magistrate was entitled to give that option by virtue of the provisions of section 97(3) of the Penal Code. Since the sentence of fine requires confirmation by this court under the provisions of section 170(2) (c) of the D Criminal Procedure Act, 1985, the same is hereby confirmed.

In fine this appeal fails and is accordingly dismissed in its entirety. E

Appeal dismissed.

1988 TLR p237

G

[zRPz]TWIKASYEGE MWAIGOMBE v MBEYA REGIONAL TRADING CO LTD 1988 TLR 237 (HC)

Court High Court of Tanzania - Mbeya

Judge Mroso J

2 December, 1988

Flynote

Labour - Employment on permanent and pensionable terms - Whether employment till age of retirement. H

Contract-Damages - Premature termination of employment.

-Headnote

The plaintiff was an employee of the Mbeya Regional Trading Co. (R.T.C.) on permanent and pensionable terms. His services were terminated when he was 45 years old. He challenged the termination and the Minister responsible I for Labour ordered his reinstatement.

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MROSO J

A The employer refused to reinstate him and chose to pay him statutory compensation. In this suit the plaintiff argued, inter alia, that since he was employed on permanent and pensionable terms termination of services at 45 years of age was premature and he was entitled to damages.

B Held: (i) For an employee to be able to sue successfully for damages for premature termination of employment he has to prove either that he was employed for life or for a period terminating on reaching

the age of compulsory retirement. Such terms cannot be implied but must be express;

C (ii) section 73 of the law of Contract Ordinance, Cap. 433 does not import into his contract of employment an implied term that he would be employed until he reached the age of compulsory retirement at 55 years.

Case Information

D Claim dismissed.

Cases referred to:

1. Mbeya Regional Trading Company Ltd. v Byamungu F. Matoka (DC) Civil Appeal No. 11 of 1987 E (unreported).

2. McClelland v Northern Ireland General Health Services Board [1957] 2 All. E.R. 129

[zJDz]Judgment

F Mroso, J.: The plaintiff was employed by the Regional Trading Company, Mbeya as an asssitant accountant, with effect from 13th May, 1977 according to a letter of appointment which was tendered by him in evidence. He was confirmed in his employment on permanent and pensionable terms with effect from 14th November, 1977 (See Exhibit P2 dated 21/5/78), and not on 31st May, 1978 as stated by him in his evidence. His services were G terminated on 20th August, 1985 in terms of section 40A of the Security of Employment Act, No. 62 of 1964, as amended by Act No. 1 of 1975. I assume it was meant that he was terminated under the provisions of section 40A H (5) of the Security of Employment Act, 1964. This was after the minister responsible for Labour had earlier ordered his reinstatement under section 40A(3) of the same Act.

He was paid the net salary for 12 months, the statutory compensation, one month's salary in lieu of notice, cash I payment in lieu of arrears of leave - 14 days for 1983, 28 days for 1984 and 28 days for 1985. He was also paid railway bus fare for him and his family to his home district in Kyela and transportation of his personal

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MROSO J

baggage not exceeding 1500 kgs. Despite those payments he has filed a suit in this court against his former A employers claiming:

"(a)The sum equivalent to the amount of salary that would have accrued to (him) until the expiry of the contract at the compulsory retirement after attaining 55 years of age for the next 10 years which is shs. 316,800/=. B

(b)Parastatal Pension Funds contributed by employer

11,148.70

327,948.70 C

(c)Salary changes and errears from 20/8/85 upto date interest and costs of the suit.

Two issues arise. The first is whether there existed a contract of service between the plaintiff and the defendant for D the defendant to continue to employ the plaintiff until he reached the age of compulsory retirement at 55 years. Second, whether the plaintiff was entitled to be paid 10 years anticipated employer's contribution towards the Parastatal Pension Fund. E

It is not disputed that the letter of appointment - Exhibit P1 - stipulates some of the terms of the contract of employment. I say "some of the terms of service including leave and medical attention will be in accordance with the Company's regulations, as amended from time to time by circular instructions. I may add that since the defendant F company is a parastatal organisation, the parties were also subject to relevant SCOPO Directives as well as any relevant statutory provisions.

One of the terms of employment stipulated in the letter of appointment is that after confirmation of appointment either G side was entitled to terminate the appointment by giving the other side three months notice, or payment of one month's salary in lieu of notice. In terminating the plaintiff's employment the defendant paid the plaintiff one month's salary in lieu of three month's notice, in confirmity to one of the terms of the contract of employment. Furthermore, H although the Minister responsible for Labour ordered the reinstatement of the plaintiff, the defendant company exercised an option allowed it by Statute - section 40A(5) of the Security of Employment Act, 1964 as amended by Act No. 1 of 1975, to refuse to take back the plaintiff, and paid the statutory compensation. I

A The plaintiff urges that there must be read into his contract of employment with the defendant company an implied term that he was to be employed until he reached the age of 55 years. He cited section 73 of the Law of Contract Ordinance as authority that he is entitled to payment of anticipated salaries for ten years. This is the period between B the age at which he was terminated, which was 45 years, and the age of 55 years at which he would have been compulsorily retired. Let me now discuss briefly whether, in fact, the defendant company had contracted expressly or impliedly, to employ the plaintiff until he attained the age of 55 years.

C I have already referred to the express term of employment in the letter of appointment in which it was stated that either party to the contract could terminate the appointment by giving requisite notice or payment in lieu. I have also referred to section 40A(5) of the Security of Employment Act, 1964, as amended by Act No. 1 of 1975, which D imposes certain onerous obligations on an employer who, despite a ministerial order to reinstate an employee who has been dismissed or terminated, refuses to comply with the order. Those two situations give the employer valid means of effectively terminating the employment of an employee.

E For an employee to be able to sue successfully for damages for premature termination of employment he has to prove either that he was employed for life or for a period terminating on reaching the age of compulsory retirement. Such terms cannot be implied but must be express. As I did in the case of Mbeya Regional Trading Company Ltd F v Byamungu F. Matoka ((DC) CIVIL APPEAL NO. 11 OF 1987) unreported, let me quote from Halsbury's Laws of England, 3rd Edition, Vol. 25 at page 520 the following words which I think are also relevant in the case at hand.

G To entitle a servant to sue for damages two conditions must be fulfilled namely:

(1) unless the contract of service is to be construed as a contract of life employment, or as excluding any general power of dismissal on notice the servant must have been engaged for

a period fixed or H determinable upon notice, and dismissed before the expiration of the period if fixed, or without requisite notice, as the case may be;

(2) his dismissal must have been wrongful, that is to say, without just cause or excuse on the part of the I master.

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MROSO J

In this case I was not referred to any term of the contract of the plaintiff's employment until he reached the age of 55 A years. Also, although the termination might have been wrongful initially, subsequently the defendant company utilised a statutory option in refusing to reinstate him and it had to fulfil near punitive conditions such as the statutory compensation. B

Secton 73 of the law of Contract Ordinance, Cap. 433 relied on by the plaintiff does not import into his contract of employment an implied term that he would be employed until he reached the age of compulsory retirement at 55 years. The section relates to compensation for loss or damage caused by breach of contract. The compensation is C payable for loss or damage which arises naturally "in the usual course of things from such breach, or which the parties knew, when they made the contract, to be likely to result from the breach of it". As already mentioned, the contract of employment between the parties anticipated that at any time either side may terminate the contract by D giving three months notice or payment of one month's salary in place of notice. The plaintiff too could also have left his employment by giving requisite notice or payment in lieu. The defendant would not be entitled to sue him for damages because he had not been working for it up the age of compulsory retirement. E

The second issue is based on the assumption rejected above that there was an implied term in the contract of employment that the plaintiff would be employed by the defendant company until he reached the age of compulsory retirement. Since the plaintiff is not entitled to 10 (ten) years anticipated salaries up to the age of 55 years, equally he F cannot be entitled to the employer's anticipated contribution to the Parastatal Pension Fund, as claimed.

Before I end this judgment let me comment in passing on the implications of the plaintiff having been offered G permanent and pensionable employment by the defendant company.

There is sometimes a misconception that where a person is offered employment on permanent and pensionable terms then that he must be employed for life and must be paid a pension.

Employment is permanent only in the sense that it is not on temporary terms. In saying this I recall the words of Lord H Goddard in the case of McClelland v Northern Ireland General Health Services Board [1957] 2 All E.R. 129

That an advertisement offers a permanent employment does not in my opinion, mean thereby that employment for life is I

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MROSO J

A offered. It is an offer, I think, of general as distinct from merely temporary employment, that is, that the person employed would be on the general staff with an expectation that apart from misconduct or inability to perform the duties of his office the employment would continue

for an indefinite period. But apart from a special condition, in my opinion, a general employment B is always liable to be determined by reasonable notice.

Nor do I think that because a person is offered pensionable emloyment the employer thereby necessarily engages to retain C the employee in his service long enough to enable him earn a pension.

I am unable, therefore, to follow the ex-parte decision of Mapigano, J. cited to me: Elikana P. Makene v D TAZARA, High Court (Dsm) Civil Case No. 38/1983 (Unreported). In that case the learned judge held that because the employment was permanent and pensionable and the plaintiff had been terminated from his employment eight years "before the expiry of the maximum period stipulated in the contract" there had been a breach of contract E entitling the plaintiff to damages in the form of monthly salary for all the eight years which he would have worked, had he not been prematurely terminated in his employment. Apparently, according to the plaintiff's contract of employment in that case he was to remain in the employment of the defendant company until he attained the age of F sixty years when he would retire with full pension benefits. The case which is before me is different because there was no such term in the contract of servicce. Besides, the case before Mapigano, J. wa, as already mentioned, heard and decided ex-parte.

G For the above reasons, I find that the plaintiff had failed to prove his claims which must be dismissed with costs.

Claims dismissed.

1988 TLR p243

A

[zRPz]FLORENT RUGARABAMU v HASSAN MAIGE GORONGA 1988 TLR 243 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Nyalali CJ, Makame JJA and Omar JJA

10 December, 1988

Flynote

Partnership - Failure to comply with a statutory requirement - Effect. B

-Headnote

The appellant and respondent were partners. Their partnership was duly registered. The first partnership venture failed to take off. Another venture was agreed and resorted to. This change of venture was not registered as C required by section 11 of the Business Names Ordinance, Cap. 213. When a dispute arose between the partners assistance of the Court was sought. The High Court tried the case. On appeal the Court considered the effect of failure to comply with statutory requirements. D

Held: (i) Section 15 of the Business Names Ordinance provides for disability to enforce "by action or other legal proceedings whether in the business name or otherwise" where there is non-complience with the provisions of section 6 of the Ordinance; E

(ii) the partnership has been tainted by the illegality arising from the failure to comply with the requirements of section 11 and no partner can enforce a right under this tainted partnership.

Case Information

Appeal dismissed. F

No case referred to.

Rutabingwa, for the Appellant

Rweyemamu, for the Responsent G

[zJDz]Judgment

Nyalali, C.J., Makame and Omar, JJ.A.: The appellant, Florent Rugarabamu, instituted a suit in the High Court at Mwanza for breach of partnership agreement and seeking various reliefs, including dissolution and winding up of the partnership, restitution of partnership assets, the taking of partnership accounts, the appointment of a receiver H and manager and declaratory orders. The appellant was unsuccessful for much of his claim but was awarded a sum of shs. 500,000/- as damages. He was aggrieved by the decision of the High Court, Mwalusanya, J. hence this I appeal to this court. Mr. Rutabingwa, learned counsel from the Tanzania Legal

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NYALALI CJ, MAKAME JJA AND OMAR JJA

A Corporation, appeared for the appellant before us, whereas Mr. Rweyemamu, learned advocate, represented the respondent. Eight grounds of appeal were submitted in the memorandum of appeal.

From the proceedings both in this Court and the trial court, the following primary matters are not in dispute between B the parties. Sometime in the first quarter of 1982 a partnership business firm was established under the business name of H. & F. Enterprises. The firm was duly registered under the Business Names (Registration) Ordinance Cap. 213. The Respondent was one of the partners.

C The registered business or venture was that of grain milling. It is common ground that this business or venture failed to take off and a new business or venture was launched, concerning the purchase and sale of foodstuffs. This latter venture proved very successful. Overdraft bank facilities were extended to the partnership and a tipper lorry D was hire-purchased by the partnership.

It is apparent from the proceedings both in this Court and the court below that the following primary matters are in dispute between the parties. It is the appellant's case that he was the other partner in the firm and that the E respondent was a managing partner. It is part of the appellant's case, that after the collapse of the grain milling venture, the partnership launched a new venture, that is, the business for the purchase and sale of foodstuffs. The respondent, however, subsequently mismanaged the firm by, inter alia, misappropriating and fraudulently converting F to his personal use some money and assets of the partnership. The respondent's case on the other hand is that the appellant has never been a partner in the firm ad that it was the appellant's father, namely, Fabian S. Mwebesa (P.W.4) who joined the respondent in establishing the firm. It is part of the respondent's case that after the grain milling business had

failed to take off the respondent alone launched the foodstuffs business with liberty to Mr. G Mwebesa to join later if he so wished. The said Mwebesa however never joined in the new venture.

H The first important point for consideration and decision in this case is what effect in law did the collapse of the first venture have on the partnership? The learned trial judge specifically considered the point and held that the failure of the grain milling business terminated the partnership by virtue of the provisions of section 212(11)(b) of the Law of I Contract Ordinance, Cap. 433 which states:

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NYALALI CJ, MAKAME JJA AND OMAR JJA

(1) Subject to any agreement between the partners, a partnership is dissolved: A

(a) (Not relavant)

(b) If entered into for a single adventure of undertaking, by the termination of that venture or undertaking;

(c) ... (Not relevant). B

Mr. Rutabingwa has challenged the finding of the trial court on this point basically on two fronts: Firstly, he has C submitted that even if the partnership was for a single venture, the partnership could not have terminated since there was an agreement by the partners to start a new venture under the partnership. Secondly, the partnership was multi-business, right from the beginning.

Let us examine each of these submissions on merits. Since the partnership in question was registered under the D Business Names Ordinance, it is obvious that any agreement to change its venture had the effect of altering the particulars registered under section 6 of the Ordinance and would, for that reason fall within the scope of section 11 of the Ordinance which requires such changes to be registered. The consequences of failure to register such changes are stipulated under section 13 and 15 of the same Ordinance. Section 13 provides for penalties, whereas section E 15 provides for disability to enforce "by action or other legal proceedings whether in the business name or otherwise". We shall have to consider the effect of section 15 to this case at the end of this judgment. For the moment, we turn to the second from of Mr. Rutabingwa's submission concerning the firm being multi-business. F

With due respect to learned Counsel for the appellant, we do not think that a firm which registers itself for a single venture under the Business Names Ordinance can lawfully exist and operate in respect of more than the registered single venture. If that was possible, the ordinance would be meaningless. The question however arises whether the G learned trial judge was correct in finding that the partnership terminated upon the failure of their milling business. With due respect to the learned judge, we think that he failed to appreciate the evidence which showed beyond H doubt that the respondent continued to act as a partner and in furtherance of the criminal partnership of H. & F. Enterprises in the foodstuff business right up to the time when this case was instituted. For instance, he continued to operate the partnership bank account, he obtained bank overdraft facilities on behalf of the partnership firm and he I hire-purchased the tipper lorry for and on behalf of the same firm. The

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A other party reciprocated by taking no action to close the partnership bank account. This conduct on the part of the partners shows that there was at least an implied agreement or understanding by the partners to launch the foodstuff venture under the partnership. But since the partnership was registered, this change effected by agreement B of the partners required compliance with the provisions of section 11 as already mentioned.

The next important point for consideration and decision concerns the consequences stated under section 15. In short that section disables a defaulter from getting assistance from the courts. This disability is a restatement of the C common law doctrine expressed in the Latin maxim, "Ex Turpi Causa Non Oritur Actio". The partnership has been tainted by the illegality arising from the failure to comply with the requirements of section 11. No one therefore, who claims to be a partner, can enforce a right under this tainted partnership. Since this contract of partnership is D thus unenforceable, we have found it unnecessary to decide the other issues that have been canvassed in this case.

In the final analysis, we agree with Mr. Rweyemamu that the trial court was wrong in awarding damages to the E appellant, since to do so is to act contrary to section 15 above mentioned. It follows therefore, but for different reasons from those used by the trial court, that this appeal must be dismissed in its entirety and the order awarding damages be set aside with costs and we order accordingly.

F Appeal dismissed.

1988 TLR p246

G

[zRPz]ATHUMAN HUSSEN v REPUBLIC 1988 TLR 246 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Nyalali CJ, Makame JJA and Omar JJA

H 15 December, 1988

Flynote

Criminal Practice and Procedure - Admission - Admission before the police and later before Magistrate - Accused cautioned before admission - Whether admissible in evidence.

I Criminal Practice and Procedure - Evidence Child of 13 years - Whether his evidence admissible.

1988 TLR p247

NYALALI CJ, MAKAME JJA AND OMAR JJA

Criminal Practice and Procedure - Sentencing - Factors to consider before passing sentence. A -Headnote

The appellant was charged with and convicted of the offence of cattle theft contrary to ss. 56(1) and 59(2) of the Economic and Organized Crime Control Act, 1984, read together with para 12 of the First schedule thereto. He B appealed against both conviction and sentence on the

ground that the evidence adduced by the prosecution did not establish the guilt of the appellant beyond reasonable doubt.

Held: (i) The statement that the accused made before the magistrate was admissible in evidence since he was told C that he was a free agent;

(ii) the evidence of the 13 year old herd boy was admissible in evidence;

(iii) the appellant deserved the sentence as the judge bore in mind the relevant factors in assessing the D sentence.

Case Information

Appeal dismissed.

No case referred to. E

Lyimo for the respondent

[zJDz]Judgment

Nyalali, C.J., Makame and Omar, JJ.A.: The appellant Athumani Hussein, was jointly charged in the Economic Crimes Court, at Shinyanga, with one Halfani s/o Luziga, alias Makambi Luziga alisa Masanja s/o Mahona, for the F offence of Cattle theft, contrary to sections 56(1) and 59(2) of the Economic Crimes Control Act, 1984, read together with paragraph 12 of the First Schedule to the same Act. The other person was acquitted but the appellant was convicted as charged and was sentenced to the maximum term of imprisonment prescibed for the offence, that is, fifteen (15) years. He was aggrieved by the conviction and sentence, hence this appeal to this Court. He G appeared in person to argue his appeal, whereas the respondent Republic was represented by Mr. Lyimo, learned Principal State Attorney. Six grounds of appeal were submitted by the appellant but they all boil down to one H essential ground to the effect that the evidence adduced by the prosecution did not establish the guilt of the appellant beyond reasonable doubt.

From the proceedings both in this Court and the court below the following primary matters are not at all in dispute I between the parties:

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NYALALI CJ, MAKAME JJA AND OMAR JJA

A On the 25th February, 1985, twenty right head of cattle belonging to Everist Lubangula (P.W.1) and Mtawazi Mbaya (F.W.4) were stolen at gun point at Kipalapala, Tabora District, while being looked after on pasture by P.W.4's son, that is, Simon Mtawazi (P.W.3). Two days later, that is, on the 27th February, 1986, a stock B movement permit was issued in the name of Masanja s/o Mahona of Mabama village. It is common ground that both the appellant and the person who was acquitted were at the material time residents of Mabama village. The latter was known by the name of Masanja s/o Mahona. Five days later after the theft of the cattle, that is, on the 2nd C March, 1986, the stolen cattle were sold to Mashauri Shoroma (P.W.2) at Urambo, Urambo District in Tabora

Region. Thereafter, P.W.2 assisted by one Charles Buyunge, drove the cattle to Nguruka in Kigoma district, where they arrived on 9th March, 1986. There the cattle were resold to Joseph Msumbi (P.W.5) and one Iddi Kukobela. D Thereafter on the 3rd April, 1986, the cattle owners, that is, P.W.1 and P.W.4 found 10 of the stolen cattle in the cattle-kraal of Iddi

Kukobela. While they were in the process of alerting the police, five of them were slaughtered in the course of the former's butchery business at Nguruka. The remaining 5 head of cattle were in so poor a state that they were not worth recovering by the owners. It is common ground that on 15th April, 1986, the appellant was E spotted near a bus stand in Tabora township and was apprehended by the police. It is undisputed that he was apprehended after being pointed out by P.W.2 who had been searching for him ever since the stolen cattle were traced to Nguruka. Furthermore, it is common ground that after his arrest, the appellant made a statement to the F police in which he admitted being in possession of the stolen cattle on 26th February, 1986, later disposing them to P.W.2. He promised to refund the stolen cattle and for that purpose he took the police to his parents' homestand in Mabama village in Tabora district. His parents refused to oblige. On the 19th April, 1986, appellant was taken G before a Primary Court magistrate, that is, Ashura Hamis (P.W. 7) to whom he made an extra-judicial statement reiterating what he had stated to the police. Subsequently, he was taken to court and charged.

H It is apparent from the proceedings, both in this Court and the court below, that the following matters are in dispute between the parties: It is the prosecution case that the appellant was one of the three persons who stole the cattle at gun-point and he later fraudulently obtained a stock theft movement permit to enable him take the cattle I away from the district where he had stolen them. On

the other hand, the defence case of the appellant is a general denial of the prosecution case and an assertion that A after his arrest he was assaulted by the police into making an incriminating statement which he later reiterated before the Primary Court magistrate.

The basic issue in this case is whether the appellant was involved in stealing the cattle in question. The prosecution B relies on three pieces of evidence. Firstly, there is the testimony of the herdsboy (P.W.3) who was looking after the cattle. It was in broad daylight and he was certain that it was the appellant who held the gun and held him in restraint while his accomplices drove away the cattle to a safe distance before he released the boy and followed his accomplices. The appellant claims that the evidence of P.W.3 cannot be relied upon as he was too young. We do C not agree with him. P.W.3 was 13 years at the time and was sufficiently mature to be trusted by his parents to take out cattle to pasture and guard them. We are satisfied that we can also rely on him to tell the truth. D

The second piece of evidence is that of P.W.2 to whom the appellant sold the cattle. We are aware that his evidence has to be treated with caution, since it is apparent that he has an interest to serve on account of being one of the suspects. The evidence of P.W.3 however corroborates that of P.W.2. E

The third piece of evidence is the extra-judicial statement made by the appellant to the Primary Court magistrate (P.W.7). Although the appellant submits that his was just a reiteration of the admission allegedly exterted from him at police station, Tabora, we are satisfied that, even if there was such prior extertion, P.W.7 succeeded to reassure F the appellant that he was a free agent at the time he made this later statement. In that statement, the appellant admitted being in

possession of the stolen cattle a day after they were stolen. That admission alone would suffice to convict him under the well known doctrine of recent possession. When that admission is taken together with the evidence of P.W.2 and P.W.3, no reasonable tribunal can come to any other conclusion except that the appellant G took part in theft of the cattle concerned. He was thus properly convicted.

As to the sentence of 15 years' imprisonment, we agree with the appellant that it is a severe sentence since it is the maximum prescribed by law for the offence. We have, however, to ask ourselves whether it is not merited in the H present case. In answering this question, we take into account the factors considered by the trial court - that is - the appellant used a gun in committing the offence. The use of a gun raises the presumption that the appellant and his I colleagues were prepared to kill in order to steal the cattle.

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A The other consideration is the prevalence of cattle rustling in the area involved. We take judicial notice of the fact that such prevalence has made the inhabitants of Tabora district feel so insecure that they have resorted to vigilante activity known as 'Sungusungu' for their own protection. By imposing severe sentences, whenever the occasion B arises, the courts will re-assure those inhabitants that the State is prepared and willing to protect them provided witnesses come forth and testify.

The last consideration is the fact that so many cattle were stolen by the appellant and his accomplices. None has C really been recovered and the appellant ought to be deprived of the opportunity to enjoy the money, totalling shs. 88,000/- which he got by selling the cattle to P.W.2. This deprivation is better achieved by keeping the appellant in jail for many years to come. For all these reasons we cannot interfere with the sentence.

D In the final analysis therefore, this appeal must be dismissed in its entirety and we order accordingly.

Appeal dismissed.

1988 TLR p250

F

[zRPz]HJ STANLEY & SONS LIMITED v ALLY RAMADHANI KUNYAMALE 1988 TLR 250 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Maina J

17 December, 1988

Flynote

G Civil Practice and Procedure - Appeal - Memorandum of appeal not accompanied by copy of decree - Effect - Order 39 Rule 1(1) of the Civil Procedure Code.

-Headnote

H Believing that it would take a long time to obtain a copy of a decree, counsel for the appellant filed and presented his memorandum of appeal without a copy of the decree.
Held: (i) It is mandatory that a memorandum of appeal be accompanied by a copy of the decree - Order 39 Rule (1) C.P.C.
I (ii) where a memorandum of appeal is not accompanied by a copy of the decree, there is no legal presentation of the appeal at all
1988 TLR p251
MAINA J
and so the appeal is incompetent and should be dismissed. A
Case Information
Appeal dismissed.
Cases referred to.
1. Stanley Kalawa Mariki v Chihiyo Kwisiya w/o Nderingo Ngomuo [1981] TLR 143. B
2. Konak Ltd. v Kooverji [1967] EA 348.
Tarimo, for the Appellant.
[zJDz]Judgment
Maina, J.: The respondent, Ali Ramadhani Kunyamale, successfully sued the appellant, H.J. Stanley & Sons C Limited, at the Bagamoyo
District Court, for a piece of land. The appellant was dissatisfied and he has appealed to this court. D
At the commencement of the hearing of the appeal, the appellant raised one point and that is that as the memorandum of appeal was not accompanied by a copy of the decree the appeal should be dismissed. Apparently, the appellant made the submission under Order 39 Rule I(1) of the Civil Procedure Code which provides as follows: E
Every appeal shall be preferred in the form of memorandum signed by the appellant or his advocate and presented to the High Court (hereinafter in this Order referred to as "the Court") or to such officer as it appoints in this behalf. The F memorandum of appeal shall be accompanied by a copy of the decree appealed from and (unless the Court dispenses therewith) of the judgment on which it is founded. G
The requirement that a memorandum of appeal be accompanied by a copy of the decree is mandatory. That is clear from the above provision of the law. Mr. Tarimo said that he did not get the copy of the decree and so he thought he would have to wait for too long to obtain a copy of the decree. So he filed the apeal without attaching a copy of the H decree with the memorandum of appeal. As I have said, it is mandatory that a memorandum of appeal be accompanied by a copy of the decree. In the case of Stanley Kalawa Mariki v Chihiyo Kwisiya w/o Nderingo Ngomuo [1981] TLR 143 the Court of Appeal cited the above provision of the Civil Procedure Code and said as follows: I
1988 TLR p252
A The combined effect of these provisions, in so far as is applicable to the present case is that on appeal from an order of the Court, the memorandum of appeal shall be accompanied by a

copy of the order appealed from. But the memorandum of appeal in the instant case was not so accompanied. The established practice of our courts has been that where a B memorandum of appeal is not accompanied by a copy of the order appealed from, this renders the appeal incompetent. On that ground, the purported appeal in the present case ought to have been dismissed accordingly.

C This court is bound to follow the decision of the Court of Appeal. In the present case, like in the Stanley Kalawa case, no copy of decree accompanied the memorandum of appeal. That is a clear non-compliance with Order 39 Rule 1(1) of the Civil Procedure Code. Those provisions are mandatory as the court of Appeal said. As this court D said in Konak Ltd v Kooverji [1967] EA 348 where a memorandum of appeal is not accompanied by a copy of the decree, there is no legal presentation of the appeal at all and so the appeal is incompetent and should be dismissed.

E Having found that the appeal is incompetent, I do not find it necessary to go into the grounds of appeal raised by Mr. Tarimo for the appellant.

Appeal dismissed.

1988 TLR p252

G

[zRPz]THE DIRECTOR OF PUBLIC PROCECUTIONS v ALLY NUR DIRIE AND ANOTHER 1988 TLR 252 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Makame JJA and Omar JJA

H 23 December, 1988

Flynote

Criminal Practice and Procedure - Bail - Offence committee under Economic and Organized Crime Control Act - Courts to hear bail applications.

I Criminal Practice and Procedure - Bail - Section 148(4) - D.P.P's certificate - When competent.

1988 TLR p253

Criminal Practice and Procedure - Bail - D.P.P.s certificate - Whether D.P.P. is required to specify or disclose the nature of A interest concerned - Section 148(4) of the Criminal Procedure Act construed.

Criminal Practice and Procedure - Bail - Expressions "pending trial" and "pending appeal" - Construed - Section 148(4) C.P.A. B

Criminal Practice and Procedure - Bail - First application dismissed - Whether another judge of same court may entertain a second application - Practice.

Criminal Practice and Procedure - Bail - D.P.P.s certificate - Whether can be filed in the High Court. C

-Headnote

The respondents were arrested on allegations of being involved in an economic and organized crime. They appeared before the District
Court to be informed of the charge facing them. After that they applied to the High Court for bail, but the Court D rejected the application. After some time they filed another application to the same court but this time the application was heard by another judge. In the course of the hearing, a certificate by the D.P.P. in terms of section 148(4) of the Criminal Procedure Act, 1985 was produced. The judge granted the application whereupon the D.P.P. appealed. E
The Court of Appeal considered the competency of the 2nd application and the correctness of the decision on that application.
Held: (i) The D.P.P. is entitled under section 148(4) of the Criminal Procedure Act, 1985, to file a certificate of objection against the release on bail of an accused person by the High Court; F

(ii) section 148(4) does not require the DPP to specify or disclose the nature of the interest concerned;

(iii) the D.P.P.s certificate must be filed either pending trial or pending appeal; G

(iv) a trial or appeal is pending in terms of section 148(4) of the C.P.A. as soon as the trial or the appeal has commenced according to law;

(v) a trial commences when an accused person appears before a court or tribunal competent to convict or acquit and after he has been informed of the charge and required to plead; H

(vi) in the present case, where the respondents appeared before the District Court which was not competent to try the economic crime case, the trial had not commenced at the time the D.P.P filed his certificate objecting bail. The certificate was premature; I

(vii) where a bail application is rejected by a judge or
1988 TLR p254
NYALALI CJ
A magistrate and a subsequent application is made before the same court, the proper practice is to bring the subsequent application before the same judge or magistrate, unless it is impracticable to do so;

(viii) since the ground for rejecting the first bail application was still valid it was wrong for the High Court to B grant the second application.
Case Information
Appeal allowed.
C Teemba, for the appellant
D'Souza, for the Respondents
[zJDz]Judgment
Nyalali, C.J.: This appeal concerns a decision of the High Court at Arusha, Mwakibete, J. on a bail application in D an economic and organized crime case. The respondents, namely Ally Nur Dirie and Abdallah Nikedi appeared before the District Court of Arusha on the 25th March, 1988 on a charge of unlawful possession of government trophy c/s 67(1)(a) and (b) of the Wildlife Conservation Act. No. 12 of 1974 and section 56(1) and 59(2) of the Economic and Organized Crime Control Act No. 13 of 1984 read together with paragraph 16(b) of the First E

Schedule to same Act. They were informed of the charge and duly advised of their rights to apply for bail to the High Court in terms of sub-section (4) of section 29 as amended by Act No. 12 of 1987. Subsequently and in consequence thereof, the respondents petitioned for bail in the High Court. Their petition was heard by Chua J. on F the 22nd April, 1988 and he rejected the petition on the same day. On the 2nd June, 1988 the respondents filed a fresh petition in the same Court for bail. This time the petition was heard by Mwakibete J. on 7th June, 1988. In the course of the hearing a Certificate by the Director of Public Prosecutions in terms of section 148(4) of the Criminal G Procedure Act, 1985 was produced. The court reserved its decision until 22nd June, 1988 when it granted the petition on certain conditions of bail. The Director of Public Prosecutions was aggrieved by the decision of the High Court hence this appeal to this Court. Mr. Teemba, learned Principal State Attorney, appeared for the appellant, H whereas Mr. D'Souza, learned advocate represented the respondents in the appeal.

Four grounds of appeal were submitted on behalf of the D.P.P. but they all raise one basic question, that is, whether the High Court, Mwakibete, J. was correct in entertaining and granting the petition. There are two aspects of this I question, the first concerns the

competency of the application heard by Mwakibete, J. and the other relates to the correctness of the decision on A that application. We start with the second aspect.

As already mentioned, the Director of Public Prosecutions had filed a Certificate objecting to bail under the provisions of section 148(4) of the Criminal Procedure Act 1985. Undoubtedly, the Criminal Procedure Act applies B to bail applications in the High Court in economic and organized crime cases by virtue of the provisions of section 28 of the Economic and Organized Crime Control Act, 1984 except to the extent that it is provided to the contrary under the latter Act. On that basis, the Director of Public Prosecutions hereinafter called the D.P.P. is entitled under C section 148(4) of the Criminal Procedure Act to file a certificate of objection against the release on bail of an adduced person by the High Court. In the present case the D.P.P did exactly that. Section 148(4) states: D

> Notwithstanding anything in this section contained no person shall, for such period as the court shall consider necessary in the circumstances of the case concerned, be admitted to bail, either pending trial or pending appeal, if the Director of Public E Prosecutions certifies in writing that it is likely that the safety or interests of the Republic would thereby be prejudiced.

Mwakibete, J. specifically considered the effect of the certificate filed by the D.P.P. under the circumstances of this case, the respondents had not yet been committed for trial by the Economic Crimes Court under the provisions of F section 30 fo the Economic and Organized Crime Control Act, and their case was still under investigation and inquiry in the District Court as provided under section 29 of the same Act. The learned trial judge stated in the relevant parts of his ruling as follows: G

> Yet the case against the applications appears not ready for trial, for the applicants/accused have not even been committed for trial by the Court - which means that the question of the applicants awaiting trial or appeal in terms of section 148(4) H C.P.A. does not arise.... But until

committed for trial, or until the filing of the information, there can be no question of the applicants in matter awaiting trial.

I suspect that the D.P.P. was under the impression that the applicants/accused had already been committed for trial or I

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NYALALI CJ

A that by the time the certificate reached Arusha from Dar es Salaam, committal process would have been completed otherwise I can not see how the applicants could be said to be awaiting trial or appeal when the matter is still at its preliminary stages with the R/M's Court. Accordingly I find myself unable to see the relevance/significance of the certificate B vis-a-vis this application.

The learned judge continued towards the end of his ruling by stating:

C ... and if I were to treat the certificate by the D.P.P. as properly filed I would have pointed out that - there was need on the part of the prosecution to spell out, to the satisfaction of the Court, precisely what interests of the United Republic would thereby be prejudiced if the applicants in this matter were to be released on bail - to enable the court to determine a reasonable D period in terms of section 148(4) C.P.A., in the circumstances of this case.

Mr. Teemba has vigorously challenged these views and findings of law by the learned trial judge. He submitted in E effect that a trial is construed to be pending against an accused person whenever that person appears in court and the appropriate charges are put to him. He was however unable to cite to us any authority in support of his stand. As to the other limb of the learned judge's views on the contents of the certificate, Mr. Teemba submitted in effect that F the words used in the relevant statute are so clear that there is no room for requiring the D.P.P. to specify in the certificate the nature of the interests of the United Republic that are liable to be prejudiced by granting bail. He G based his submission on the established rules of construction of statutes.

Mr. D'Souza for the respondents supported the views and findings of the court below. Let us start with the last limb of the submissions. We agree with Mr. Teemba's contention. The words of section 148(4) given their ordinary H meaning according to the established rules of construction are so clear that they do not require the D.P.P. to specify or disclose the nature of the interest concerned. In our considered opinion, it is sufficient if the D.P.P. "certifies in writing that it is likely that the safety or interests of the United Republic would thereby be prejudiced". The learned I trial judge was of the view that specifity in the nature of interest or safety concerned is necessary to enable the Court to determine the reasonable period

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NYALALI CJ

within which bail is to be denied. With due respect to the learned judge he appears to have confused two issues A which ought to be treated and decided separately. Firstly, there is the issue of validity of the D.P.P.'s certificate. This is governed by the following conditions:

(i) The D.P.P. must certify in writing and B

(ii) The certificate must be to the effect that the safety or interests of the United Republic are likely to be prejudiced by granting bail in the case; and

(iii) The certificate must relate to a criminal case either pending trial or pending appeal. C

Secondly, there is the issue of the period during which an accused person is not to be released on bail. In the terms of section 148(4) the period is determined by the court upon the criteria stated therein, that is, "such period as the D court shall consider necessary in the circumstances of the case concerned". It is wrong in our view to construe these provisions narrowly so as to limit the circumstance of a case to the interests or safety of the United Republic referred to in the D.P.P.'s certificate. Such interests or safety may often be relevant circumstances, in which case details of it E will be given to the court in the course of determining the period necessary for denial of bail, but they are not supposed to be the only circumstances which the court has to consider.

Let us now turn to the first limb of the submissions - that is concerning the timing of the D.P.P.'s certificate. We start F by asking ourselves "what do the expressions 'pending trial' or 'pending appeal' mean in terms of section 148(4) of the Criminal Procedure Act?" Mr. Teemba cited similar provisions under section 35(2) of the Economic and Organized Crime Control Act, 1984 and section 19 of the National Security Act, 1970. Unfortunately none of these G Acts defines what a pending trial or pending appeal is. We had to do our own research after hearing the appeal on the 15th November, 1988 and this explains the delay in delivering this judgment.

Our research has shown that the expressions "pending trial" or "pending appeal" have a special legal meaning which H is different from their ordinary meaning. These expressions do not mean 'awaiting trial' or 'awaiting appeal' as used by the learned trial judge. According to ... (2nd Edition, Vol. 2, page 1344): "An action, arbitration or other I proceeding is said to be pendent after it has been commenced and before the final judgment or award has been

A given. Pendency is the state of being pendent". This definition is similar to that used in India where our procedural law has its precursor. In the case of Asgarali Nazarali State of Bombay (1957) ATR S . P.503, it was stated, ... a legal proceeding is pending as soon as commenced and until it is concluded i.e. so long as the court having original B cognizance of it can make an order on the matters in issue, or to be dealt with therein".

On the basis of this authority which we accept as correct, we thus find that a trial or appeal is pending in terms of section 148(4) of the Criminal Procedure Act as soon as the trial or the appeal has commenced according to law. C But then the question arises - when does a trial or appeal commence according to law? In our considered opinion, a trial commences when an accused person appears before a court or tribunal competent to convict or acquit him and after he has been put on trial by informing him of the charge and requiring him to plead. We are supported by D authority for this view. According to Somoni's Code of Criminal Procedure 13th Edition at p.22-23 it is stated:

In a case exclusively triable by a court of Session, the trial begins only when after the commitment and the charge is framed E and the accused appears at the session.

In our view a trial does not commence when an accused person appears before a tribunal or court which is not F competent to try him or when he appears before a competent tribunal or court but is not called upon to plead to the charge facing him.

In the case of an appeal, the position is slightly different from a trial, because under our procedural law, the physical G participation of an accused person is fundamental to a trial, whereas in an appeal his physical participation is not a basic element of the appellate process which relies heavily on the record of the proceedings of the lower court. That is why there is provision for summary disposal of an appeal without appearance by either party to the appeal (see section 364 of the Criminal Procedure Act). So in the case of an appeal, it commences, and therefore becomes H pending after the filing of prescribed documents, usually the Notice of Appeal and the Petition of Appeal (see sections 361 and 362 of the Criminal Procedure Act).

In the present case therefore, where the respondents appeared before the District Court of Arusha District, which I was not competent to try the economic crime case in terms of section 29

and 30 of the Economic and Organized Crime Control Act, 1984, the trial had not commenced at the time the A D.P.P. filed his certificate objecting to bail. In otherwords, the certificate was premature.

To that extent we concur with the conclusion of the learned trial judge on this point. If the Legislature wishes to enable the D.P.P. to file such certificate even before the commencement of a trial, a suitable amendment of the B relevant law is necessary.

We now come to the issue of the competency of the High Court, Mwakibete, J. to entertain the second bail application. There are two aspects of this issue, the first one concerns the proper forum for deciding the bail C application, and the second one, relates to the principle of functus officio.

We start with the first aspect. Mr. Teemba has submitted that the High Court was not the proper forum to hear the bail application in terms of section 29(4) of the Economic and Organized Crime Control Act as amended by Act No. 12 of 1987. That section states: D

> After the accused has been addressed as required by sub-section (3) the magistrate shall, before ordering that he be held in remand prison where bail is not petitioned for or is not granted, explain and, for the purposes of this section the power to E hear bail applications and grant bail-
>
> (a) between the arrest and the committal of an accused person for trial by the Court, is hereby vested in the district court F and the court of a resident magistrate if the value of any of the property involved in the offence charged is less than ten million shillings;
>
> (b) after committal of the accused for trial but before commencement of the trial before the Court, is hereby vested in the High Court; G
>
> (c) after the trial has commenced before the Court, is hereby vested in the Court;

(d) in all cases where the value of any property involved in the offence charged in ten million shillings or more at any stage before commencement of the trial before the Court is hereby vested in the High Court. H

Mr. Teemba has submitted that according to the citation in the title of the proceedings and the subsequent ruling of Mwakibete, J., the application was filed in the economic crimes jurisdiction of the High Court and not in the ordinary I jurisdiction of the High Court.

1988 TLR p260

NYALALI CJ

A That being the position, the matter which concerned property valued at shs. 18,000,000/= was filed and decided in the wrong forum.

Undoubtedly, the relevant caption reads as follows:

IN THE HIGH COURT OF TANZANIA AT ARUSHA

B ECONOMIC CRIMES JURISDICTION

MISC. CAUSE NO. 101 OF 1988

ORIGINAL ARUSHA DISTRICT COURT

CRIMINAL CASE NO. 29 OF 1988.

C Admittedly, this caption suggests, when account is taken of the provisions of Rules 4 and 8 of the High Court Rules, 1984, Cap. 453 (GN. 23 of 25/1/85) that the bail application was filed in the wrong section of the High Court registry. The record of the proceedings however shows that when the application came up for hearing, it was D heard by the High Court exercising its ordinary jurisdiction. The earlier formal irregularity was therefore cured by the High Court properly constituting itself. We are satisfied therefore that the bail application was entertained by the proper forum.

E As to the other aspect of the issue - that is the question concerning the High Court being functus officio after the decision of Chua, J., we are satisfied that the second bail application before Mwakibete, J. was incompetent for the following reasons. In the earlier ruling by Chua, J., the High Court, concluded with the following words:

F In this case I rule that the release of the applicant on bail in the face of the objections raised is not in the best interests of justice in the case.

G We have asked ourselves, what were those objections raised and upheld by Chua, J.? Mwakibete, J. was aware of them and he reproduced them as under:

1. That the charge being a serious one involving ivory great monetary value is likely to attract a severe H punishment in the event of the applicant being found guilty. That being the case the applicant is likely to find means to avoiding justice, including absconding.

I 2. That the applicant being non-Tanzanian may be tempted to flee even if his passport is impounded.

1988 TLR p261

NYALALI CJ

3. That the release of the applicant at this stage when investigation is not completed may mean that the A police will be hampered in their efforts to not other persons who are alleged to have participated in the commission of the offence.

Looked at in their essence, they boil down to two grounds upon which Chua, J. rejected the application for bail - B that is - firstly, that the applicants were likely to abscond because of the severity of the possible sentence and because they were foreigners; secondly that the applicants were likely to interfere with the investigations at that early stage of the case. In law, either one of these grounds is a sufficient cause for refusing bail. The first ground, as it was C conceded by Mr. D'Souza, is a static one - it could not change with the passing of time. The other one is variable and open to change of circumstances as time passed. If the latter ground was the only ground for refusing the D application, the High Court's jurisdiction would not have been exhausted by the decision of Chua, J. But in the light of the other static ground which by itself provides a sufficient barrier to a subsequent grant of bail, unless overturned by a higher court, it is obvious that the High Court was not competent to do what Mwakibete, J. did on the 22nd E June, 1988. For this reason, we are bound to allow the appeal by the D.P.P.

Before we do so however, we must deal briefly with two other related matters. First, we would like to emphasise for the avoidance of doubt and for guidance of the courts below, that where a bail application is rejected by a judge F or magistrate and a subsequent application is made to the same court, the proper practice is to bring the subsequent application before the same judge or magistrate, unless it is impracticable so to do. This will help such court to keep within its competency. Second, we note that Mwakibete, J. in granting bail in this case, took also into G account the health condition of one of the applicants, who was said to be an asthmatic case. We do not think that it is correct in principle to grant bail on that basis, since a disease like asthma can be cared for even when the patient is under remand custody in accordance with the normal remand prison regulations. H

Having said this, we now hereby allow the appeal, quash the decision of Mwakibete, J. and restore the decision of Chua, J.

Appeal allowed. I

1988 TLR p262

A

[zRPz]WAYANI LONGOI AND ANOTHER v ISRAEL SOLOMON KIVUYO 1988 TLR 262 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Mustafa JJA, Makame JJA and Kisanga JJA

B 24 December, 1988

Flynote

Land Law- Right of Occupancy - Disposition - Approval requirement under Regulation 3(1) of the Land Regulations 1948 not complied with - Effect.

-Headnote

C The 1st appellant, husband of the 2nd appellant, entered into a written agreement with the respondent for the sale of land, with a building thereon, held under a Right of Occupancy by the 2nd appellant. The purchase price was paid but the appellant failed to handover the property.

D The trial court decided in favour of the respondent on the ground that the husband acted as agent of the wife, holder of the Right of Occupancy.

E On appeal the Court of Appeal considered the effect of failure to comply with the approval requirement under Regulation 3(1) of the Land Regulations, 1948.

Held: (i) What Regulation 3(1) of the Land Regulations, 1948 means is that unless and until consent has been F obtained the agreement cannot be enforced by suing on it;

(ii) an agreement to sell a right of occupancy which has received no consent (approval) under the Regulation is inoperative and hence unenforceable at law - Nitin Coffee Estates Ltd and Four Others v United Engineering Works Ltd and Another

Case Information

G Appeal allowed.

D'Souza, for Appellants

Mahatane, for Respondent

[zJDz]Judgment

H Kisanga, Mustafa and Makame, JJ.A.: The first appellant Wayani Langoi is the husband of the second appellant. The first appellant entered into a written agreement with the respondent for the sale of land, with a building thereon, which is held under a Right of Occupancy by the second appellant. Pursuant to the agreement, the I respondent duly paid the purchase price, but

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KISANGA JJA, MUSTAFA JJA AND MAKAME JJA

the first appellant failed to hand over the property to him, hence the filing of this suit. The first appellant claimed that A he had concluded the agreement in the hope that his wife, the second appellant, would ratify it, but then she did not. The second appellant, on the other hand, asserted that she was never aware of the agreement to sell her land, nor was she ever consulted, by the first appellant about it. The trial judge found that the first appellant concluded the sale agreement as an agent for the second appellant and that the second appellant was well aware of the sale. B Accordingly he decreed specific performance in the following terms:

The state of affairs demand that the defendants (present appellants) do all acts, on their part, to transfer ownership of the C property in question to the plaintiff (present respondent), in terms of para 4 of the sale agreement. They are so ordered.

There was also an order of compensation for Shs. 10,000/= against the appellants for withholding the certificate of D occupany i.e. for failing to transfer the property to the respondent. The appellants have now appealed through their advocate, Mr. J.C. D'Souza, while Mr. F.B. Mahatane for the respondent resisted the appeal.

Mr. D'Souza filed a total of eight grounds of appeal. Ground No. 5 of his memorandum of appeal reads: E

5. The High Court erred in law in ordering specific performance of an agreement inoperative for want of requisite writing and consent under Reg. 3 Land Regulations 1948 (G.N. 232 of 1948) as amended by the Land (Amendment) F Regulations 1960.

The question of consent had also been raised at the trial as one of the issues framed, but the learned judge in his G judgment disposed of it simply by stating that matters of consent by the Commissioner for Lands became relevant only after the appellants had discharged their obligation under the agreement. The relevant parts of Regulation 3 of H the 1948 Regulations cited by Mr. D'Souza provide as follows:

3-(1) A disposition of right of occupancy shall not be operative unless it is in writing and unless and until it is approved by I the President.

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KISANGA JJA, MUSTAFA JJA AND MAKAME JJA

A (2) ...

(3) In this regulation "disposition" means-

(a) a conveyance or assignment other than by way of mortgage

(b) ....

B (c) a deed or agreement or declaration of trust binding any party thereto to make any such disposition as aforesaid, including a deed or agreement entitling a party thereto to require any such disposition to be made.

C It is quite clear that the purported sale of the right of occupancy in the instant case was subject to the provisions of this Regulation. Admittedly the agreement complied with the Regulation only to the extent that it was in writing, but there was no consent by the Commissioner for Lands to whom the President has delegated his powers under the D provision. As stated before, the learned judge took the view that the issue of such consent would arise only after the appellants had discharged their obligation under the agreement. With due respect, however, we think that that was a wrong interpretation of the Regulation. What the provision really means is that unless and until such consent E was obtained, the agreement could not be enforced by suing on it. It remained a gentlemen's agreement, if you wish, but it could not form the basis of a suit in a court of law. Since the trial judge's decision was based wholly on an F agreement which was inoperative at law, the judgment itself was thereby vitiated and it would not stand.

Mr. Mahatane referred us to the decision of the High Court in the case of Sylveri Mushunga v Theonastina G Rwakanika [1974] L.R.T. No. 30 in which Mfalila, J. held a different view. When dealing with that case, the learned judge had been referred to previous decisions in which it was consistently held that the courts would not enforce a claim which could only be established by relying upon a transaction declared by law to be inoperative for H lack of approval under the Regulation. He specifically considered the cases of Patterson and Another v Kanji [1956] 23 E.A.C.A. 106, Patel v Lawrenson and Another [1957] E.A.C.A. 249 and Kassam v Kassam and Another [1960] E.A. 1042, but took the view that those cases were distinguishable from the one he was dealing I with. With respect to the learned judge, however, this is not so.

We have looked at those cases ourselves but could find no basis for the distinction. In those cases, like in the one under consideration by

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KISANGA JJA, MUSTAFA JJA AND MAKAME JJA

the learned judge, the issue was raised whether an agreement which had received no approval or consent as A required by the Regulation was inoperative, and hence underforceable at law, and the answer was yes.

In yet another dimension the learned judge took the view that consent under the Regulation applied only to B dispositions as defined under the Regulations to mean conveyance or assignment but did not include a contract of sale of a right of occupancy. Once again this was wrong. Regulation 3(3)(c) as reproduced above makes it clear that an agreement to sell a right of occupancy is a disposition within the meaning of the Regulation. C

On these two grounds, therefore, we are satisfied that the case of Sylveri Mushunga v Theonastina Rwakanika was wrongly decided. The view that an agreement to sell a right of occupancy, which agreement has received no consent under the Regulation, is inoperative, and hence unenforceable at law, was re-affirmed by this Court in the D more recent cases of Patel v Marealle and Another C.A. 5 of 1984 and Nitin Coffee Estate Ltd. and Four Others v United Engineering Works Ltd. and Another C.A. 15 of 1988 (both unreported).

We also heard arguments on whether the first appellant concluded the agreement as an agent for the second E appellant, and whether the second appellant subsequently ratified the agreement. On the evidence we are satisfied that both contentions cannot be maintained. It is clear that the first appellant concluded the agreement as a principal and the respondent accepted him as such, and there is nothing to indicate or suggest that the second appellant ever F ratified the transaction.

It therefore follows that the judgment of the High Court, based as it was wholly on an agreement which was inoperative at law, cannot be sustained and it must be set aside. G

It is further ordered that the first appellant shall refund to the respondent the purchase price plus the money spent on the property which according to the evidence comes to Shs. 232,240.00; the property to remain vested in the H second appellant. The first appellant is also to refund the respondent the money paid for rates and services which he is shown to have been paying since 1979 or 1981. On the other hand the respondent is to refund to the first appellant the amount of money received as rent from tenants in three rooms which on the evidence is shown to be Shs. 200.00 per room per month, i.e. Shs. 600.00 per month, from the date of possession of the property by the I respondent until the property is handed back to the second

1988 TLR p266

A appellant. The property is to be handed back within 30 days of the date of this judgment. There will be no order as to costs.

Appeal allowed.

1988 TLR p266

B

[zRPz]THE REGISTRAR OF BUILDINGS v FELIX s/o BWOGI & EXIMPO PROMOTION AND SERVICES 1988 TLR 266 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Nyalali CJ, Makame JJA and Omar JJA

C 1988

Flynote

D Civil Practice and Procedure - Appeals - Adjornment of - Judicial policy of the Court of Appeal.

-Headnote

This was an appeal from the judgment and decree of the High Court, the bill of costs taxed by the High Court and E execution proceedings arising out of the said judgment. When the appeal came up for hearing the respondent applied for an adjornment of the hearing the grounds of which were amply explained in the order of the court.

Held: (i) As a matter of judicial policy and practice the Court of Appeal would not adjourn the hearing of an appeal F except in special circumstances;

(ii)application for adjournment granted.

Case Information

Kesaria, for the appellant

G Maira, for the respondent

[zJDz]Judgment

Nyalali, C.J., Makame and Omar, JJ.A.: When this appeal came up for hearing this morning, Mr. Maira, H learned advocate for the respondent applied for adjournment of the hearing on the grounds stated in the affidavit filed on 1st November, 1988. These grounds are substantially to the effect that there is an application by the respondent pending in the High Court in which the respondent seeks two things. Firstly, he is applying for extension I of time to apply to the High Court for leave to appeal to this Court; and secondly he is applying to be allowed by The High Court to appeal to this Court against the Order of the High Court Maina, J. which granted the

present appellant an extension of time to give notice of appeal against the judgment of the High Court Mapigano, J. A given on 24th November, 1987 and the Bill of Costs taxed by the High Court in subsequent execution proceedings. Mr. Kesaria learned advocate for the appellant has vigorously opposed this application for adjournment. Our own examination of the original record of the High Court confirms the fact there is indeed such as application by the respondent pending in the High Court. Undoubtedly, if the application is granted by the High B Court and if the respondent successfully appeals to the Court against the Order of Maina, J. which enables the current appeal to come before this Court as Civil Appeal No. 19 of 1988, the consequence would be to render this C current appeal incompetence.

However, Mr. Kessaria has submitted to the effect that the intended appeal by the respondent, which is the subject of the application pending in the High Court is already time-barred by the provisions of Rule 83 of the Tanzania D Court of Appeal Rules, 1979. We find this submission pertinent, but we are of the considered opinion that the proper place and time for making this submission is in the course of the hearing of the application pending in the High Court. It will be open and appropriate for the High court to reject the application on the ground that the intended E appeal, is inter alia, already time-barred under the provisions fo Rule 83. If that happens, the current appeal before us will proceed to be heard and decided as expected. But if the application is granted, the current appeal will have to await a decision by this Court on the intended appeal since it concerns the competency of the current appeal. F

In the final analysis therefore, since the Court as a matter of judicial policy and practice will not adjourn the hearing of an appeal except under special circumstances, and since the intended appeal amounts to such special G circumstance, we hereby grant the application for adjournment with the following directions.

1. This appeal be fixed for hearing by the Registrar as soon as possible after the High Court has given decision on the pending application; and H

2. The High Court to proceed to hear and decide the pending application, as soon as its diary of court business permits.

3. Costs to follow the event.

Order accordingly. I

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1. The Hon. Mr. Justice A.S.L. Ramadhani Chief Justice

Cases Reported
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A
[zRPz]JOSEPH WARIOBA BUTIKU v PERUCY MUGANDA BUTIKU 1987 TLR 1 (HC)

Court High Court of Tanzania - Dar es Salaam
Judge Biron J

30th December, 1980
Flynote
Family Law - Divorce - Both parties are agreed that the marriage has irreparably broken B down - Decree absolute dissolving the marriage to issue.
-Headnote
In this case both parties pleaded that their marriage had irreparably broken down and C prayed for divorce.
Held: Where the parties have agreed on sufficient issues of fact and law raised in their pleading, the court may pronounce judgement and order accordingly. D
Case Information
Order accordingly.
No cases referred to. E
[zJDz]Judgment
Biron, J.: By Rule 29(2) of the Law of Marriage (Matrimonial Proceedings) Rules 1971, "The court shall proceed to try a petition in the same manner as if it were a suit under the Civil Procedure Code 1966." And by Order XV Part 1 of the Civil Procedure Code 1966: F
Where at the first hearing of the suit it is apparent that the parties are not at issue on sufficient questions of law or of fact, the court may at once pronounce judgement. G

In this matrimonial suit, both parties have by their counsel agreed on more than sufficient issues of fact and of law raised in their pleadings. The Petitioner in his petition, and the Respondent in her answer, establish that the marriage has irreparably broken down, as H both assert it has, and each spouse is praying for a divorce. Consequently I have not the slightest hesitation in formally finding that the marriage has in fact and in law irreparably broken down. Accordingly it is hereby ordered that a decree absolute dissolving the marriage is to issue. I

The second issue, that of the custody of the only child of the marriage which each party is claiming in his and her pleadings

1987 TLR p2

respectively, presents no difficulty at all, as the Respondent realising that the child, A Gladys, who is now sixteen years of age and will be more than eighteen years old and therefore sui juris and not subject to the jurisdiction of the Court in respect of a custody order, by the time she returns to this country from the United States of America, has withdrawn her claim for the custody of Gladys. And as I have a penchant for consensual B orders, it is hereby ordered that by consent the custody of the only child of the marriage, Gladys, is awarded to her father, the Petitioner.

We now come to the third and last issue, that is the division of the matrimonial assets, which so very often presents considerable difficulty. C

Therefore both parties are agreed that such issue cannot be determined in the absence of the Respondent but should await her return to this country. Consequently, this issue as to the division of the matrimonial assets is by consent deferred until the return of the D Respondent to this country, when it is hoped it will be amicably resolved.

E Order accordingly.

1987 TLR p2

F

[zRPz]MAXIMILIAN RWABULALA v EMILIAN KALUGALA AND ANOTHER 1987 TLR 2 (HC)

Court High Court of Tanzania - Bukoba
Judge Mwalusanya J

11th December, 1987

Flynote

Civil Practice and Procedure - Jurisdiction - Taxation of Advocates costs - Advocate's Rules G GN. 89 and 159 of 1962.

Civil Practice and Procedure - Complaint against decision of the Taxing Master - Procedure.

-Headnote

After a case had been heard and determined in the High Court, the respondents filed a Bill of Costs for taxation by the District Magistrate in his capacity as Taxing Master. The H Taxing Master assessed the Bill of Costs. The appellant filed an appeal against the order of assessment.

Held: (i) According to the Advocates' Renumeration and Taxation of Costs I (Amendment) Rules GN 89 and 159 of 1962 Cap. 9 of the
1987 TLR p3
MWALUSANYA J
Applied Laws, the proper Taxing Master is the court where the case terminates. Since A the case in point ended in the High Court the District Magistrate had no jurisdiction to conduct the taxation;

(ii) according to the said Taxation of Costs Rules, any complaint against the decision of any Taxing Master goes to the High Court by way of reference and not by way of appeal. B
Case Information
Decision quashed.
No cases referred to. C
[zJDz]Judgment
Mwalusanya, J.: The respondents Emiliana d/o Kalugala and Nassoro s/o Rutaihwa filed a Bill of Costs in the sum of Shs. 30,948/= for taxation by the District Magistrate of Bukoba District Court in his capacity as a Taxing Master. The Taxing Master taxed it at Shs. 29,548/=. The aggrieved party Maximilian s/o Rwabulala (appellant) has now D appealed to this court against that order.
In my view the decision of the Taxing Master is a nullity as he had no jurisdiction to adjudicate this matter. According to the Advocates Remuneration and Taxation of E Costs (amendment) Rules GN. 89 and 159 of 1962 (Cap. 9 of the Applied Laws), when the case terminates at the subordinate court, Taxing Master is the District Magistrate or Resident Magistrate. The case at hand terminated at the High Court and therefore perforce the Taxing Master must be the District Registrar. Therefore the learned District Magistrate was wrong to have conducted the taxation of costs in a F matter which he had no jurisdiction. And likewise the Bill of Costs was filed at the wrong forum.
And for general information, I wish to point out that according to the aforesaid Taxation of Costs Rules, any complaint against the decision of any Taxing Master, goes to the G High Court by way of Reference and not by way of appeal. Therefore the purported appeal before me is equally misconceived.
Be that as it may, the decision of the District Court is declared void and it is hereby set aside. The purported appeal is struck off the Register. I make no order as to costs. H
Order accordingly.
1987 TLR p4
A
[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v PETER ROLAND VOGEL 1987 TLR 4 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mapingano J

17th March, 1987 B

Flynote

Extradition Act, 1965 - Authority to extradite a person from the territory - Agreement between Tanzania and Federal Republic of Germany - Whether any legal arrangements in place - Evidence of. C

-Headnote

Peter Roland was claimed by the Federal Republic of Germany where he was required to carry out a custodial penalty following his conviction on a charge of rape. A formal requisition for his surrender was made by a competent representative of the Federal Republic of Germany and the Minister responsible for legal affairs signified to the lower D court accordingly. The Minister requested the court to declare whether or not the Tanzanian Executive could, under the provisions of Part II of the Extradition Act, 1965, Cap. 585, authorise the claimed person to be extradited from the territory of Tanzania. The Magistrate held that the Executive had no such authority. The Minister was not E satisfied and appealed to the High Court. The issues before the High Court were: Whether the learned Magistrate was at fault; and whether the proceedings can properly be remanded to the lower court to continue to adjudicate upon the issues and deal with other matters as provided under the Extradition Act, 1965. F

Held: (i) Given the materials adduced, the decision of the learned Magistrate that there are no legal arrangements between Tanzania and the Federal Republic of Germany in relation to extradition of fugitive criminals cannot be upset; G

(ii) the learned Magistrate exercised his discretion properly when he refused to grant the application for adjournment of the hearing on 9.3.87; H

(iii) part II of the Extradition Act, 1965 pertaining to the surrender of fugitive criminals in pursuance of an existing agreement between Tanzania and another state does not apply to the Federal Republic of Germany and the court cannot substitute the old state of Germany, which appears in GN 125/32 with the state of Federal Republic of I Germany which came into being years after the making of GN 125/32.

1987 TLR p5

MAPIGANO J

Case Information

Appeal dismissed. A

Phillip and Shio, for the appellant.

Maira for the respondent.

[zJDz]Judgment

Mapigano, J.: Peter Roland Vogel is being claimed by the Federal Republic of B Germany. It is said that he is wanted there in order that he may carry out a custodial penalty following his conviction on a charge of rape. However, the questions whether he was so convicted and so sentenced have yet to be determined by the lower court and they are not my concern in this appeal. C

It is no longer in dispute that a formal requisition for his surrender has been made by the competent representative of the Federal Republic of Germany and that the Minister responsible for legal affairs has signified to the lower court accordingly. In effect, the D said Minister

wanted the lower court to declare whether or not the Tanzania Executive is, under the provisions of Part II of the Extradition Act, 1965, Cap. 585 of the Revised Laws, authorized to extradite the claimed person from the territory of Tanzania. In his Ruling dated 10th inst. the learned principal magistrate held that the said Executive E enjoyed no such authority. The Minister is dissatisfied and has post-haste come to this court on appeal. The question is whether the learned magistrate was at fault and whether the proceedings can properly be remanded to him for him to continue to adjudicate upon the other issues and deal with the other matters as prescribed by the provisions of the Extradition Act, 1965. F

The appeal is dual-pronged. The decision of the learned magistrate that on the material before him no agreement between Tanzania and the Federal Republic of Germany in regard to the surrender of fugitive criminals exists is being challenged. G

In the alternative it is contended that the learned magistrate erred in not affording the Minister sufficient opportunity to adduce further evidence on the issue of existence or otherwise of such an agreement. Let me deal with this allegation of unfairness first.

It is trite to observe that any person who is charged with the duty of adjudicating upon H disputes or the rights of others is enjoined to act fairly, in good faith and in a judicial temper. He is obliged to give each part the opportunity of adequately stating his case, and correcting or contradicting any relevant statement prejudicial to his case. And Mr. Mwanyika, counsel for the Minister, is right in pointing out that this is a matter of great I moment, in that it touches on inter-state relations', which therefore, calls for due seriousness,

anxiety and patience. But can it be candidly said that the learned magistrate did not live A up to his duty?

I have gone through the record of the proceedings. I have noticed that on 6.3.1987 Mr. Marando, counsel for the claimed persons, made it abundantly clear that a preliminary point was being taken with regard to the existence of any legal extradition arrangements B between Tanzania and the Federal Republic of Germany, and he made a reference to the provisions of section B of the Extradition Act, 1965.

The learned magistrate adjourned the proceedings to 9.3.87 and he told the two counsel who appeared for the Minister that he expected them to assemble their evidence on that C point and furnish it on that day. In theses circumstances, if some evidence was not tendered on 9.3.87 by the Minister, it cannot be true that the learned magistrate exercised his discretion improperly in refusing to grant a further adjournment to enable D the Minister to produce the evidence which was not then at hand. But sauce for the goose is sauce for the gander. A sense of seriousness about which Mr. Mwanyika has addressed this court must, in my opinion, be equally shown by the bar. Quite clearly the point raised by Mr. Marando was a very vital one. It is a point that should have been E anticipated by the Minister right from the very start. After all what was actually the heart of the matter? What was the whole idea of going to the learned magistrate? Was it not to establish that extradition arrangements exists between Tanzania and the Federal Republic of Germany and to ask him to operate those arrangements in accordance

with F our Municipal Law? On the facts demonstrated by the record I am not satisfied that the learned magistrate exercised his discretion improperly. In the event I dismiss the contention that the Minister was unfairly deprived of sufficient opportunity of being heard.

I turn to the other point, to wit, as stated, whether on the materials before him the G learned magistrate was wrong in holding that there is no agreement to surrender fugitive criminals between Tanzania and the Federal Republic of Germany. The materials which the learned magistrate referred to are certain provisions of the Extradition Act, 1965, G.N 125/62 made under section 3 of the Fugitive Criminal Surrender Ordinance, 1922, H Cap. 22, the Agreement between the Government of the Federal Republic of Germany and the Government of the United Kingdom of Great Britain and Northern Ireland for the extradition of fugitive criminals, which was concluded in Bonn on 30.8.1960 (hereinafter called "the I

Agreement of 1960"), and the declaration of the Prime Minister of Tanganyika of A 9.12.1961.

I pause to deal with the point raised by Mr. Maira, counsel for the claimed person, in regard to the construction of extradition enactments. Relying on a certain passage which B appears at p. 1939 of the Fifty Years Digest by Chitabey and Ramaratham, counsel has asked me to construe the provisions of the Extradition Act strictly. That passage reads as follows:

> Extradition Act and Criminal Procedure Code both being penal enactments their terms must C be strictly construed in favour of accused persons wherever such construction can be reasonably justified.

On the other hand we have section 4 of the Penal Code to consider. That section D provides thus:

> Subject to the provisions of the Interpretation Act, 1972, and the expression specifically defined in this Code, the Code shall be construed according to the principles of construction which E may be applied to any written law, with regard to Tanzania conditions and without applying any principle of strict construction relating to penal legislation.

I put the question, and I think it is a pertinent question, whether a strict construction of F the terms of the Extradition Act can be justified in Tanzania in view of the above section of the Penal Code. I put the question in other words, whether it is desirable to have two rules of construction in relation to penal matters, one being applicable to the provisions of the Penal Code and the other to the provisions of the other penal G enactments. In my opinion I think not.

By Article 1 of the Agreement of 1960 the provision of Treaty of 1872 relating to the mutual surrender of fugitive criminals concluded by the erstwhile State of Germany and the United Kingdom were re-applied, as between the territory of the Federal Republic H of Germany, on one hand, and the territories of the United Kingdom and other countries, including Tanganyika, for international relations of which the Government of the United Kingdom was then responsible, on the other hand. The question that poses is whether I that Agreement is valid in the court of Tanzania today. Counsel of the appellant says "yes" and his authority is

MAPIGANO J
section 28 (1) (b) of the Extradition Act, 1965. But counsel for the respondent says A "no" and he has drawn my attention to the provision of Article 7 of the agreement of 1960, to the absence of any Order in Council in that regard and to the declaration made in 1961 by the Prime Minister of Tanganyika.
In my respectful opinion counsel for the respondent is right. Article, 7 of that Agreement B stipulates, in language clear and plain, that the date on which the Agreement shall come into force shall be agreed upon by the exchange of notes. There is no evidence that such an exchange has ever taken place. What's more, as counsel for the respondent pointed out, citing para. 1186 of Archbold, 38th edition, extradition C agreements in the United Kingdom are brought into force, by Orders in Council. That is consistent with the constitutional law of that state. There the power of main treaties, languages and alliances with foreign states is vested in the Crown as part of its prerogative. There is nothing here to show that an Order in council in respect of that D Agreement has ever been made. What all this comes down to is that there was no evidence before the learned magistrate that the agreement of 1960 has ever come into operation in the United Kingdom, let alone in the other territories listed in that Agreement. E
Counsel for the respondent has taken the point a step further. He has argued that even if there was an exchange of notes, as stipulated in the Agreement, and an Order in Council, as required by the law of the United Kingdom, the Agreement would still be invalid in Tanzania today. When this argument was first put forth before the learned F magistrate counsel for the Minister sought to counter it by the production of what was described as a "Verbal Note", whatever that means. The said verbal note was ruled inadmissible on the ground that it lacked authentication, and in my view rightly so. G
There is force in the argument of counsel for the respondent. Two factors are notable in this connection. The first factor is that Tanganyika did not enter into any devolution agreement with the United Kingdom, upon attaining its independence in 1961, in regard to treaties that had been validly concluded by the United Kingdom on behalf of the H territory of Tanganyika or validly applied or extended by the former to the latter. The second factor is the declaration of the Prime Minister of 9.12.1961, the day Tangayika emerged into independence. That declaration was transmitted to Secretary General of I the United Nations who was requested to arrange for the circulation of its text to all Members of that

Organization. The relevant part of that declaration, for the purpose of this case, reads as A follows:

As regards bilateral treaties validly concluded by the United Kingdom on behalf of the territory of Tanganyika, revalidly applied or extended by the former to the territory of the latter, the B Government of Tanganyika is willingly to continue to apply within its territory, on a period of two years from the date of independence (i.e.. until December, 1963) unless abrogated or modified earlier by mutual consent. At the expiry of that period, the Government of

Tanganyika C will regard such of these treaties which could not by the application of the rules of customary international law be regarded as otherwise surviving, as having terminated.

It is the earnest hope of the Government of Tanganyika that during the aforementioned period D of two years, the normal processes of diplomatic negotiations will enable it to read satisfactory accord with the states concerned upon the possibility of the continuance or modification of such treaties.

Other countries including Uganda, Kenya, Zambia, Malawi, Trinidad and Burundi E subsequently adapted the same attitude. That stand has come to be called "the Nyerere Doctrine of State Succession" that is quite probable that the Prime Minister took a cut from Mr De Valera the First Prime Minister of the Irish Free State. As back as July, 11, F 1933, Mr. De Valera had declared, in his country's attainment of independence, as follows:

The present position of the Irish Free State with regard to treaties and conventions concluded G between the late United Kingdom and other countries is based upon the general international law practice in the matter when a new state is established. When a new state comes into existence which formerly formed part of another state, its acceptance or otherwise H of the treaty relationship of the older state is a matter for the new state to determine by express declaration or conduct (in the case of each individual treaty) as consideration of policy may require.

That is a quotation which appears in the text-book International Law and the New I Africa States by Felix chuks Okoye,

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MAPIGANO J

at page 50. That is by the way. And be the matter what it may, it appears that the A doctrine in question is now an established component of the law of state succession.

It is overly clear that the declaration of the Prime Minister of Tanganyika made an exception of treaties which then bound Tanganyika in accordance with the rules of B customary international law imposes no obligation upon a state to surrender criminals to other states and that it thus permits a state to protect them at its discretion. Indeed, as a number of text-writers on the subject have pointed out, the systematic surrender of such persons has essentially been either a matter of courtesy or a matter of subservience on C the part of one state towards another.

Now the position in this case, at the end of the day, is that there was no tangible material before the learned magistrate to show that the earnest hope of the Government of Tanganyika was at all realized. We do not know, assuming that the Agreement of 1960 D was in operation in Tanganyika at the time of independence, that the said normal processes of negotiation for its continuance did actually take place within the stipulated period, and if they did take place whether or not they ever resulted into the continuance of that Agreement. It seems to me, therefore, that the learned magistrate was right in E saying that if that Agreement was in force in Tanganyika immediately prior to independence it lapsed when the stipulated period expired on 8.12.1963.

As we have seen the suggestion has been made that the Agreement of 1960 has been F revised or adopted by the exchange of notes between the Government of the Federal Republic of Germany and the Government of Tanganyika, which allegedly took place between 11.12.1963, i.e after the expiration of the stipulated period, and 14.4.1964. True it is that the two states had legal capacity to adopt the said Agreement. True it is G also that a defunct agreement can be reactivated by mutual consent. That is a transaction which some test-writers like Oppenheim have termed "Reconfirmation" or "Redentergration". However, the question that arises is whether there was any exchange of notes as alleged, I am sorry to say that there was, at the end of the day, only a bald H assertion by counsel for the Minister about it and, with respect, I cannot help but get amazed.

I now proceed to consider whether the surrender of the person claimed can be effected under the terms of section 28 (1) (b) of the Extradition Act, 1965, as contended by counsel for the appellant. That Act repealed the Fugitive Criminal surrender Ordinance, I Cap. 22, among other laws. By section 3 of that Ordinance read together

with G.N 125 of 1932 made thereunder (the only statutory instrument relevant), A Tanganyika and Germany had reciprocal obligation to surrender to each other all persons against whom the competent authorities of the requesting part were proceeding for certain offences, inclusive of rape, or who were wanted by the said authorities for suffering punishment for those offences. B Section 28 of the Extradition Act, 1965 bears the marginal rubric "Transitional" and I confess, incidentally, that I do not understand why. By sub-section (1) (b) of that section, part II of the Act, which pertain to the surrender of fugitive criminals in pursuance of an existing agreement between Tanzania and another state, was made to C apply to all the countries to which the Ordinance applied immediately before the commencement of that Act. And by sub-section (2)(b), the application of that part was made to have effect as if the terms of the relevant agreement and the conditions, D exceptions and qualifications specified in any order made under the Ordinance and in force immediately before the commencement of the Act, had been specified by Order made under the Act. The question that is thrown up is whether Part II is applicable to the Federal Republic of Germany, or, in fine, whether it is open and valid for a court to E automatically substitute the old state of Germany, which appear in GN 125/32, with the state of Federal Republic of Germany, which came into being years after the making of GN 125/32. With due respect, I regret the answer must be "no".

The fact of the matter is that the state of Germany now exists only in history. It is no F longer a legal entity. It is no longer a subject of international law. It was vanquished by the allied Forces in World War II and underwent the agony of dismemberment in the forties, with the result that the country formed separate states which came to be known as, respectively, the Federal Republic of Germany and the German Democratic G Republic, with distinct political systems and espousing differing ideologies. All this is a matter of public knowledge and a fact of history of which a court is entitled to take judicial notice.

It is well that it has not been directly contended that there was a transmission of the rights H and obligations of the old state of Germany to the new state of the Federal Republic of Germany. It would not accord with the general international law practice if it were so. As Casteen has written as quoted in Max Sorensen's Manual of Public International Law, 1963 edit. at p. 295: I

1987 TLR p12

When a state is dismembered into new independent states, its treat is as a rule become full A and void without descending to the new states. Treaties are generally personal in so far as they presuppose, in addition to territory, also the existence of a certain sovereign over the territory. To the succeeding states the treaties concluded by the former state are res B internalios acta.

Indeed, that is probably why the Government of the United Kingdom came to enter into the Agreement of 1960 with the Government of the Federal Republic of Germany. Like C the learned magistrate, I hold, that there is no room to operate the provision of section 28(1)(b) of the Extradition Act, 1965, in this case, on the materials that are available before the court.

In the final result, I hold that the decision of the learned magistrate that there are no legal arrangements between Tanzania and the Federal Republic of Germany, in relation to D extradition of fugitive criminals, cannot be upset, given the material that were adduced or referred to. And I find that the learned magistrate exercised his discretion properly when he refused to grant the application for adjournment of the hearing on 9.3.87. I fully E appreciate, as I have already observed, that this is a matter of considerable moment. But in the final analysis the new law of this country must be allowed to take its course. Accordingly, this appeal fails and is dismissed in its entirety.

F Appeal dismissed.

1987 TLR p12

G

[zRPz]HARITH SAID BROTHERS COMPANY v MARTIN NGAO 1987 TLR 12 (CA)

Court Court of Appeal of Tanzania - Mbeya

Judge Mustafa Ag CJ, Makame JJA and Omar JJA

7th May, 1987 H

Flynote

Sale of Goods - Sale by seller in possession - Dispute as to ownership between first buyer and second buyer - Section 27(1) Sale of Goods Ordinance, Cap. 214.

Sale of Goods - Damages - Claim for special damages - Whether satisfactorily proved. I

1987 TLR p13

MUSTAFA Ag CJ, MAKAME JJA AND OMAR JJA

-Headnote

This was an appeal by the appellant company challenging the decision of the trial High A Court on the ownership of goods. Kampuni ya Usafiri Sumbawanga, KAUSU, sold a bus to the defendant for Shs. 200,000/=. On failure of the defendant to pay the price KAUSU recovered possession of the bus from the defendant and invited tenders from B the public to purchase the bus. The appellant's tender was accepted. Payment of the price was effected and KAUSU delivered the bus to the appellant. A month later KAUSU delivered to the appellant the registration card of the bus. Sometime after the appellant had taken possession of the bus, the police, in compliance with an order made C by the High Court, seized the bus and kept it in safe custody pending directions by the Court.

On the question of ownership of the bus the High Court decided that notwithstanding breach of payment condition property in the bus passed to the first buyer, the D respondent, when the contract was made, i.e. on May 3, 1980, and therefore KAUSU had no title to pass to the second buyer, the appellant.

The appellant argued on appeal that they were buyers from a seller in possession of the goods already sold and were thus protected by section 27(1) of the Sale of Goods Ordinance, Cap. 214. Further the appellant prayed for special damages for loss of E business due to seizure and, therefore, non-use of the bus.

Held: (i) As KAUSU was in possession of the motor vehicle at the time of the sale to the appellant, we are satisfied that the provisions of section 27(1) of the Sale of Goods F Ordinance are applicable, as all the other conditions had been complied with;

(ii) the appellant company is the rightful owner of the motor vehicle;

(iii) no special damages had been satisfactorily proved. G

Case Information

Appeal allowed.

Cases referred to: H

1. Bishopsgate Motor Finance Corp. v Transport Brakes Ltd [1949] 1 KB 322 at 338.

Buteyunga for the company.

[zJDz]Judgment

Mustafa, Ag. C.J., Makame and Omar, JJ.A.: The appellant Company (hereafter called the Company) had purchased a bus TZ 38992 from Kampuni ya Usafiri I Sumbawanga (hereafter

called KAUSU) for shs.305,000/= during August/September 1980. A

It appeared that the respondent Martin (hereafter called Martin) had earlier on, in May 1980 purchased the same bus from KAUSU for Shs. 200,000/= and had paid for the said purchase by four cheques, three of them post-dated, dated 3rd May 1980, 31st May 1980, 30th June 1980 and 30th July 1980 respectively. B

The first cheque for Shs. 100,000/- dated 3rd May 1980, when presented for payment at the bank was returned unpaid with the remarks endorsed thereon "Refer to drawer". Obviously Martin had no money in the bank to meet the said cheque. Although the said cheque was presented for

payment later than 3rd May (it was in fact presented for C payment on June 2, 1980) that did not alter the situation that the cheque was dishonoured.

However KAUSU managed to arrange for the seizure of the bus with the help of the Police, and the bus was out of the possession of Martin after Martin's failure to pay. It D also appeared that KAUSU was in possession of the registration card of the said bus, and KAUSU still remained registered as the owner of the bus.

On or about 6th August, 1980, by advertisement in the Daily News and the Uhuru Newspapers, KAUSU invited the public to tender for the purchase of the said bus. The E company tendered for the purchase of the bus and on 9th September 1980 its tender was approved by KAUSU. The Company paid the price of 305,000/= for the bus, and KAUSU handed over possession of the bus and the registration card to the Company on 20th September 1980. The Company used that bus from 20th September 1980 to 10th October 1980 when it was seized by the Police, in action apparently initiated by F Martin, who had claimed the bus as his property.

The Company filed a plaint in the High Court seeking a declaration that it was the rightful owner of motor vehicle No. TZ 38992, and for the said vehicle to be returned to it. It G also claimed damages for loss of business due to the seizure of the vehicle.

The trial judge (Samatta, J) held that KAUSU had sold the bus to Martin when KAUSU accepted the cheques drawn by Martin as payment. He held that on the sale, the property in the bus had passed to Martin, and KAUSU's only remedy for the cheque or H cheques being dishonoured was to sue and claim for the purchase price from Martin.

With respect we think that the trial judge was correct in his conclusion concerning the transaction between KAUSU and Martin.

In its claim before the High Court, the Company inter alia I

relied on the provisions of section 27(1) of the Sale of Goods Ordinance. Section 27 A (1) reads:

> When a person having sold goods continues or is in possession of the goods, or of the documents of title to the goods, the delivery or transfer by that person, or by a mercantile agent B acting for him, of the goods or documents of title, under any sale pledge or other disposition therefor, to any person receiving the same in good faith and without notice of the previous sale, shall have the same effect as if the person making delivery or transfer were expressly C authorized by the owner of the goods to make the same.

The trial judge found in effect that the Company had purchased the vehicle from KAUSU in good faith, and without notice of a previous sale. However the judge held D that section 27(1) was entirely irrelevant to the case before him. He was of the view that at the time the bus was sold to Martin, KAUSU had divested itself of possession of the vehicle and deliver possession of it to Martin. He held that the registration card of the vehicle was not a document of title to the goods. E

The judge was correct in holding that a motor registration card is not a document of title to the motor vehicle. However, as pointed out by Mr. Bateyunga for the Company, one who is registered as owner of the card is presumed to be the vehicle owner until the F contrary is

proved. And as stated by Denning L.J. (as he then was) in Bishopsgate Motor Finance Corp. v Transport Brakes Ltd [1949] 1 KB 322 at 338:

The registration book of a car or the log book as it is called, may not itself be a document of G title, but it is the best evidence of title.

Be that as it may, we think that the trial judge erred in not finding that at the time of the sale by KAUSU to the Company, KAUSU was in possession of the vehicle. The H vehicle might have been in the possession of Martin at the time he purchased it, but it was clear that KAUSU had recovered possession of it when it sold it to the Company.

At the trial PWI, the manager of the appellant Company testified. He stated inter alia: I

1987 TLR p16

MUSTAFA Ag CJ, MAKAME JJA AND OMAR JJA

Mr Sadala (the General Manager of KAUSU) physically handed over the motor vehicle TZ A 38992 to me at Sumbawanga Police Station.. on 20.9.1980.... My driver drove the vehicle to Mpanda. A month later we received the registration card in respect of the vehicle.

Mr Sadala also gave evidence. He said: B

This Company (i.e. appellant) paid Shs 305,000/- for the purchase of the motor vehicle. This was on 20.9.1980. I received the money on behalf of the Company. I physically handed over C the motor vehicle to Harith Saidi & Brothers Company.

This testimony regarding the handing over of the vehicle by KAUSU to the Company was not challenged and it was clear that KAUSU had possession of the vehicle when it D sold it to the Company.

The trial judge appeared to have held that the motor vehicle was out of the possession of KAUSU and in the possession of Martin at the time of the sale transaction of the vehicle by KAUSU to the Company. In this he was clearly in error. E

As KAUSU was in possession of the motor vehicle at the time of the sale, we are satisfied that the provisions of section 27(1) of the Sale of Goods Ordinance were applicable, as all the other conditions had been complied with. F

We may also mention that here the sale was certainly open and advertised to the public. It was effected by public tender. There was evidence which strongly suggested that Martin knew of the advertisements for the sale of the motor vehicle which were published in the newspaper, but took no action. KAUSU had the registration card of G the vehicle in its possession, as well as the physical possession of the vehicle. This was as near the sale in market over conditions as it is possible in certain parts of Tanzania.

Mr Bateyunga also submitted that Martin should be stopped from challenging the sale by KAUSU to the Company. We do not think it is necessary to deal with that issue as we H are satisfied that the Company must succeed under the provision of section 27(1) of the Sale of Goods Ordinance.

The trial judge dealt with the claim for special damages by the Company but came to the conclusion that no special damages had been satisfactorily proved. We concur with that I view.

1987 TLR p17

We allow the appeal of the Company and set aside the order and decree of the High A Court. We substitute therefore an order declaring that the appellant company is the rightful owner of motor vehicle TZ 38992.
We also order that if the said vehicle is with the respondent Martin, he must forthwith B return it to the appellant Company in the condition in which the respondent took it.
We award costs to the appellant Company both here and below.
C Appeal allowed.
1987 TLR p17
D
[zRPz]T.A. KAARE v GENERAL MANAGER MARA COOPERATIVE UNION (1984) LTD 1987 TLR 17 (HC)

Court High Court of Tanzania - Musoma
Judge Mapigano J

12th May, 1987 E
Flynote
Labour Law - Labour dispute - Existence of - Letter from Secretary General of Juwata to Regional Secretary of Juwata instructing the latter to pursue a complaint - Whether evidences existence of a dispute.
Civil Practice and Procedure - Interlocutory injunction - Application for - Principles F governing power to grant such application.
-Headnote
The appellant's employment with the respondents was terminated in 1980. After challenging the termination he was reinstated in 1984. By then he had already attained G the retirement age of 55 years. He resisted the decision to retire him and refused to receive his terminal dues. When the appellant was served with a quit order to vacate the premises allocated to him by his employer he sought judicial redress. The quit order was served by the District Commissioner. The judicial redress took the form of instituting H legal proceedings in the Resident Magistrates Court claiming perpetual restrictive injunction restraining the General Manager and his servants or agents from evicting him from the premises pending his labour dispute. The only basis of the said labour dispute I was a letter written by the Secretary-General of Juwata to the Regional Secretary instructing the latter to pursue the appellant's complaint.
1987 TLR p18
MAPIGANO J
Before the expiry of the quit notice period the appellant applied to the court for A interlocutory injunction under Order XXXVII of the Civil Procedure Code to restrain the respondents from ejecting him from the premises pending the suit.

The Resident Magistrate turned down the application. On appeal the appellate Court B considered, inter alia, whether a pending labour dispute existed and principles governing power to grant interlocutory orders.

Held: (i) The letter of the Secretary - General of Juwata to the Regional Secretary of Juwata instructing the latter to pursue the appellant's complaint, by itself, is not enough to C constitute a labour dispute, especially in view of the fact that there was nothing to show that the addressee had complied with the instruction and taken up the matter;

(ii) before granting a discretionary interlocutory injunction the court should D consider:

(a) Whether there is a bonafide contest in between the parties.

(b) On which side, in the event of the plaintiff's success will be the balance of inconvenience if the injunction does not issue, bearing in mind the principle of E retaining immovable property in status quo.

(c) Whether there is an occasion to protect either of the parties from injury known as "irreparable" before his right can be established. "Irreparable Injury" means that the injury will be material i.e one that could not be F adequately remedied by damages.

Case Information

Appeal allowed.

No case referred to. G

[zJDz]Judgment

Mapigano J.: I heard this appeal on the 6th inst. The respondent was absent though he had been duly served with a notice of hearing. I allowed the appeal and reserved the reasons. I will now state the reasons. H

The appellant Timothy Marwa Kaare was once a civil servant. On 5th June, 1979 he joined the Mara Industrial Company Ltd. on secondment and held the post of Industrial Economist. He was allocated one of the residential houses that had been let to his employer by the Tanzania Housing Bank situated at Makoko in Musoma Township. In I May, 1980 he was promoted to the post of

1987 TLR p19

MAPIGANO J

"Economist, Production and Marketing Manager". That was after he had opted to A remain with the company as a permanent employee. In due course things went awry for him. For certain reasons the Executive Board of the company terminated his employment with effect from the 22nd, 1983. Feeling aggrieved, he made several protestations and called to some higher authorities. His strenuous and sustained B exertions attained success of sorts. They resulted into convening of the company's Board of Directors to review the termination on the 21st June, 1984. After some deliberations the said Board resolved to vacate the termination and to reinstate him in his C former employment. What happened, however, is that by then the appellant had already attained the age of 55 years and the Board directed that he be retired, on the grounds that the retiring age, according to the terms of his employment, was 55 years. On being so notified the appellant resisted the decision of the Board, contending that the D retiring age was not 55 years and declining to receive the proposed terminal dues. It was all for naught.

At the instance of the Union the District Commissioner of Musoma served the appellant with a written notice to quit the premises that had been allocated to him by the Union by E the 28th August, 1986. The appellant reacted by seeking judicial redress : On the 24th August, 1986 he instituted legal proceedings in the Court of Resident Magistrate at Musoma to challenge the said notice, and the only relief he claimed and still claims is a perpetual restrictive injunction restraining the General Manager of the Union, the F respondent herein, or his servants or agents, from evicting him from the premises on the grounds, inter alia, that there was a labour dispute still pending between him and the respondent in respect of his being retired from the employment. The respondent contested the action and presented a written statement of defence on the 19th August, 1986. G

Next, on 25th August, 1986, i.e, before the expiry period of the quit notice, the appellant made an application for interlocutory injunction under the relevant provisions of Order 37 of the Civil Procedure Code to restrain the respondent from ejecting him from the premises during the pendency of the suit. The application was heard on the 27th H August, 1986 and the learned resident magistrate started by framing and recording two issues, to wit : (a) whether or not the plaintiff is still entitled to remain in possession and occupation of the premises; and (2) what remedies are the parties entitled to. After I recording and considering some evidence the learned magistrate turned down the application. The learned

magistrate's reasons for the decision are three fold : First, the applicant was properly A retired from the employment because, he said, the appellant was employed as a civil servant and by virtue of statutory provisions, which were not specified, the retiring age was 55 years; secondly, there was no evidence to support the appellant's contention that there was a labour dispute pending between the parties; and thirdly, the appellant had B displayed unmeritorious conduct in that, he stated, the appellant refused to fetch his retirement benefits. The decision of the learned magistrate was delivered on the 3rd September, 1986, and being dissatisfied with it, the appellant brought the present appeal to this court. C

The first ground is that the learned magistrate erred in law in purporting to determine the principal matters in the main suit. It is quite true that the learned magistrate dealt with such matters and quite at length at that. Indeed, the recording of the issues and the way they were formulated, the content and tenor as well as the drift of the Ruling, and the fact D that the findings on the issues have an air of finality, leads one to reasonably apprehend that the learned magistrate went out of his way and purported to decide the main suit. Lest I am misunderstood, let me be quick enough to point out that I am not saying that the learned magistrate was not obliged to consider the point whether or not E there was a substantial question to be tried by court. Nor am I suggesting as the appellant would have me do, that the learned magistrate was not entitled to assess the materials before him in regard to the question of retirement. But in my opinion the scope of that exercise should have been limited to the question of the bonafides or otherwise of F the suit and its entertainability by the court. For the real point to which the learned magistrate should have applied his judicial mind is not whether the suit holds forth

bright prospects of success or how the suit ought to be decided at the hearing of the case but whether there is substantial question to be inquired into and whether matters should not G be preserved in status quo until the final determination of the suit. There is thus some merit in the first ground.

The second ground is that the learned magistrate erred in holding that there was no pending labour dispute between the parties. The appellant relied on a letter of the H Secretary - General of JUWATA dated the 23rd June, 1986, which he addressed to the Mara Regional Secretary of JUWATA instructing him to pursue the appellant's complaint. I confess it is a fine point whether that letter is by itself enough to constitute a labour dispute, especially in view of the fact that there was nothing to show that the I addressee

had complied with the instruction and taken up the matter. In my view, therefore, the A learned magistrate cannot be faulted for holding as he did.

The third ground of appeal is that the learned magistrate was not justified to hold that the appellant's conduct was unmeritorious. I respectful agree. Surely the mere fact that the B appellant has declined to collect the retirement dues cannot be fairly described as an unmeritorious conduct under the circumstances. The collection of those dues would have appeared to be inconsistent with his contention that his retirement was unwarranted, though of course it would not at law have prejudiced his case. Still, I am unable to go C further and say that the findings of the learned magistrate was born of prejudice, as the appellant has charged in the memorandum of appeal. The fourth ground is that the learned magistrate erred in overlooking the illegality of the eviction notice. This is a strong point. Quite evidently what precipitated this action was the quit notice of the D Musoma District Commissioner. That notice is, in legal parlance, the cause of action, and as I see it the action stands or falls on the lawfulness or otherwise of that notice, because if the notice in question is unlawful, then it is ipso facto inoperative. One has to consider E and decide the question whether the District Commissioner was vested with authority to give such notice in order that one may decide whether matter which eminently commends the suit to serious investigation by the court of trial, which as already indicated, is one of the circumstances that has to be considered on an application for an interim injunction. F

The last ground is that the learned magistrate erred in that he did not apprehend that the ends of justice required the granting of the temporary injunction. Properly, so. However, the appellant should rather have put it differently, like this: the learned magistrate did not appreciate the true nature and parameters of the application and, in G consequence, he non - directed himself to the law applicable.

As we have seen, the appellant was suing for a permanent injuction and during the course of and before the suit was called on for hearing he brought the application with a H view to remaining in possession of the suit - premises pending the conclusive disposal of the proceedings. The power to grant such an application has always been discretionary, to be exercised judicially by the application of certain well - settled principles. The first such governing principle, as

indicated supra, is that the court should I consider whether there is a bona fide contest in between the parties. Secondly, it should consider on which side, in the event of the
1987 TLR p22
plaintiff's success, will be the balance of inconvenience if the injunction does not issue, A bearing in mind the principle of retaining immovable property in status quo. Thirdly, the court should consider whether there is an occasion to protect either of the parties from the species of injury known as "irreparable" before his right can be established, keeping it in mind that by "irreparable injury" it is not meant that there must be no physical B possibility of repairing the injury but merely that the injury would be material, i.e., one that could not be adequately remedied by damages. With due respect, let it be said that the learned magistrate did not pause to address his mind to these points, let alone C pronounce on them, and I am disposed to think that if he had done so he would most probably have granted the application.
D Appeal allowed.
1987 TLR p22
D
[zRPz]MAFURU MAGABANYA v JOSEPH MULYA 1987 TLR 22 (HC)

Court High Court of Tanzania - Musoma
Judge Mapigano J

28th May, 1987 E
Flynote
Family Law - Enticement - Adultery - Assessment of damages for adultery or enticement - F Court to have regard to the custom of the community to which the parties belong - Whether husband and wife were living together - S 74 Law of Marriage Act 1971.
-Headnote
This was an appeal from the District Court of Bunda against quantum of damages G assessed by District Magistrate. There was enough evidence that the appellant was living with the respondent's wife after inducing her to desert the respondent.
The two had previously been found committing adultery in consequence of which the H respondent was brought to court and adjudged to pay damages to the appellant in civil case No. 124/1984. The parties in this case do not belong to one community. One is a Msukuma and the other a Mruri and there was nothing to show that the relevant custom of Wasukuma corresponds to that of Waruri. I
1987 TLR p23
MAPIGANO J
Held: (i) Under the law, damages for adultery or enticement is in the discretion of the A court and in the exercise of its discretion the court is obliged to pay due regard to any relevant custom of the community to which the parties belong;

(ii) this was a serious case of enticement and adultery and that is a circumstance B which the court can properly take into account when assessing damages;

(iii) damages which were awarded in this case namely twelve heads of cattle were excessive and the award contained an element of punishment which is not permissible in law;

(iv) an award of five head of cattle should have met the justice of this case. C

Case Information

Order accordingly.

No cases referred to. D

[zJDz]Judgment

Mapigano, J.: There was sufficient evidence to establish that the appellant Mafuru Magabanya induced the wife of the respondent Joseph Mulya to desert him. There was E believable evidence that he kept the woman at his home for several days. He was found in her company on a journey. He was carrying her on his bicycle. The militiaman who had been tipped about the affair apprehended both of them. In the circumstances, the learned district magistrate was justified to conclude that this was not only a case of F enticement but one of adultery as well. It is difficult to imagine that the two were living together without the context of sexual intercourse. More so in this case in view of the fact that the two had previously been found committing adultery, in consequence of which the respondent was brought to court and adjudged to pay damages to the G appellant in Civil Case No. 124/84 of the primary court of Bunda. The appeal is dismissed to the extent that it concerns the appellant's liability to pay damages to the respondent.

The appeal from the quantum of damages assessed by the learned district magistrate - has some merit. Under the law damages for adultery or enticement is in the discretion of H the court, and in the exercise of its discretion the court is obliged to pay due regard to any relevant custom of the community to which the parties belong, and in the question of adultery, to the question whether the husband and the adulterous wife were living together or apart at the time of the commission of the adultery. The parties in this case I do not belong to one community. One is a Msukuma and the other is a

Mruri and there was nothing to show that the relevant custom of the Wasukuma A correspond with that of the Waruri. It is true that this was a serious case. As pointed out, it was both a case of enticement and adultery and in my view that is a circumstance which the court can properly take into account when assessing the damages, still, I think that the damages that were awarded in this case, namely twelve head of cattle, were too B expensive. Though the learned magistrate did not expressly say so, one gets the impression that his award contained an element of punishment, which is not permissible at law. In my view an award of five head of cattle should have met the justice of this case. C

Accordingly, the appeal succeeds in part in that damages are reduced to five head of cattle. Each part is to bear his costs of this appeal.

D Order accordingly.

E

[zRPz]IN THE MATTER OF AN APPLICATION BY JUWATA & 94 OTHERS FOR LEAVE TO APPLY FOR ORDERS OF CERTIORARI AND MANDAMUS AND IN THE MATTER OF KIUTA & ANOTHER 1987 TLR 24 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Maina J

18th June, 1987 F

Flynote

Labour Law - Jurisdiction - Permanent Labour Tribunal - Whether the Tribunal has jurisdiction over a trade dispute which has not been referred to the Conciliation Board as G provided for by Section 40A of the Security of Employment Act, Cap. 574.

Labour Law - Limitation of time - Whether the Permanent Labour Tribunal has jurisdiction to hear dispute which has not been brought to it within the time specified. H

Labour Law - Per incuriam decision - Tribunal refuses to entertain a dispute by citing a decision which was made per incuriam - Whether Tribunal bound by the per incuriam decision.

-Headnote

On the first day of April, 1985, KIUTA declared the service of ninety four employees I no longer required. On the 25th day of June,

MAINA J

1985, the JUWATA Regional Secretary request JUWATA's General Secretary to A declare a trade dispute between the Union and the Respondents. Thereafter the matter was referred to the Labour Commissioner and on 2nd May, 1986, the Minister referred the matter to the Permanent Labour Tribunal but the Tribunal declined and determined B the application on the ground that the matter had not been referred to the Conciliation Board as provided for under Sec. 40A of Security of Employment Act, Cap 574. The Tribunal held that it was bound by the decision of the Court of Appeal in Civil Appeal No. 9 of 1982 between Zambia Tanzania Road Service Limited v Pallangyo. C

Held : (i) An aggrieved employee under the Permanent Labour Tribunal Act must refer a dispute to a Conciliation Board within 14 days as provided in Section 40A of the Security of Employment Act; D

(ii) where an aggrieved employee does not refer the dispute to the Conciliation Board within the period specified, the Permanent Labour Tribunal shall not have jurisdiction to entertain the dispute;

(iii) that the relevant part of the decision of the Court of Appeal in Pallangyo's E case was not given per incuriam. The Tribunal was bound to follow that decision.

Case Information

Application dismissed.

Case referred to: F

1. Zambia Tanzania Road Service Limited v J.K. Pallangyo (1982) unreported.
2. Morelle Ltd. v Wakeling [1955] 1 All E.R. 708.
3. Kariri Cotton Co. v D.R. Dewani [1985] EA 239.

Shivji, for the applicants. G

Rutagatina and Ndosi, for the respondents.

[zJDz]Judgment

Maina, J.: This is an application by Jumuiya ya Wafanyakazi Tanzania (JUWATA) on H behalf of its ninety-four members for order of certiorari and mandamus, to bring to this court and quash the decision of the Permanent Labour Tribunal and to direct the Permanent Labour Tribunal to hear and determine the trade dispute between JUWATA and the employer, Kiwanda cha Uchapishaji cha Taifa (KIUTA).The facts are briefly as I follows:

1987 TLR p26

MAINA J

The ninety-four employees of KIUTA were declared redundant on 1 April 1985. They A complained to JUWATA. On 25 June 1985 the JUWATA Regional Secretary requested the Secretary General to declare a trade dispute between the Union and the Respondents. The dispute was then referred to the Labour Commissioner, and on 2nd B May 1986 the Minister for Labour referred the dispute to the Permanent Labour Tribunal. In its decision dated 3rd September 1986, the Permanent Labour Tribunal refused to hear the application on the ground that the matter had not been referred to the Conciliation Board under section 40A of the Security of Employment Act, Cap 574. The Tribunal held that it was bound by the decision of the Court of Appeal in Civil C Appeal No. 9 of 1982, Zambia Tanzania Road Services Limited v J.K. Pallangyo.

It was Prof. Shivji's submission on behalf of the applicants, that the Tribunal erred in refusing to hear the dispute because, Prof. Shivji said, the relevant decision in the Pallangyo case was given per incuriam. In the Pallangyo case, the Court of Appeal D held, inter alia, that because the employee had not referred the dispute to the Conciliation Board within fourteen days, as required by the Security o f Employment Act, the ruling of the Tribunal that the employee's dismissal was wrongful, "was invalid E and hence ineffectual in as much as it proceeded upon the Tribunal's wrong assumption of jurisdiction." Professor Shivji submitted that the Court of Appeal's decision on the matter in the Pallangyo case was delivered per incuriam. He said that the decision was given in ignorance or forgetfulness of inconsistent statutory provisions and it was F demonstrably wrong, and therefore not binding on the Tribunal.

He cited the English case of Morelle Ltd v Wakeling [1955] 1 All E.R 708 in which the Court said as follows: G

> As a general rule, the only case in which decisions should be held to have been given per incuriam are those decisions given in ignorance or forgetfulness or some inconsistent statutory provision or of some authority binding on the court concerned: so that in such cases H some part of the decision or some step in the reasoning on which it is based is found on that basis to be demonstrably wrong ...

The decision in the Morelle case was followed in Kiriri Cotton Co. v D.R Dewani I [1985] EA 239. Mr Rutagatina and Mrs Ndosi who appeared on behalf of the Respondents submitted, on the other
1987 TLR p27
MAINA J
hand, that the Court of Appeal considered the Pallangyo case properly and the A decision was not, in their opinion, given per incuriam.
The inconsistency which Professor Shivji referred to is in sections 4(1) of the Permanent Labour Tribunal Act and 40A of the Security of Employment Act. He said these two B provisions are inconsistent and the Court of Appeal did not consider that. Section 4(1) of the Permanent Labour Tribunal Act provides as under:

4(1) any trade dispute whether existing or apprehended, if not otherwise determined may be reported to the Labour Commissioner by notice in writing given either by or on behalf of the C employer, or on behalf of the employees by the general secretary of a registered trade union of which the employees are members.

Section 40A of the Securty of Employment Act Cap. 574 as amended by Act No. 1 of D 1975 provides as follows:

4(1) Notwithstanding any other provision of this Act, or of any written law, where an employer terminates the employment of any employee or summarily dismisses any employee, and the E employee is aggrieved by such termination or dismissal, the employee may at any time before the expiration of fourteen days from the date on which such termination or dismissal F takes effect refer such termination or dismissal to the Board....

It is true, in my view, that the Permanent Labour Tribunal Act deals with collective disputes. The Security of Employment Act deals mainly with individual disputes. Section G 4(1) of the Permanent Labour Tribunal Act does not specifically provide the period within which disputes may be referred to the Labour Commissioner, while section 40A of the Security of Employment Act specifically provides that an aggrieved employee H must refer the matter to a Board within fourteen days. But, in my opinion, that aspect of the matter, that is, the period within which a dispute may be referred to the Board was decided by the Court of Appeal in the Pallangyo case. The Court said:

Admittedly there are no provisions under the Permanent Labour Tribunal Act relating to I limitation of actions. But the
1987 TLR p28
MAINA J

view that claims brought under that Act are not subject to limitation seems untenable. If that A view were to be upheld the implication of it, is that where an employee thinks that the termination of his services is wrongful, he may delay lodging his grievances for ten or twenty years or even for an indefinite period. We think that is undesirable and would be objectionable B on policy grounds. Such employee must act promptly in seeking to vindicate his rights.

Their Lordships went on to hold that section 40A of the Security of Employment Act applies. So, in the Pallangyo case the Court of Appeal specifically addressed its mind C on the issue of

limitation and decided that the aggrieved employee should have referred the matter to a Conciliation Board within fourteen days.

I do not agree with Professor Shivji that the Court of Appeal in the Pallangyo case was D legislating on limitation. The Court of Appeal made an interpretation of the relevant provisions of the law and came to a conclusion that disputes under the Permanent Labour Tribunal Act must be referred to a Board within the period specified before they can be heard by the Tribunal. It is therefore not correct that the Court of Appeal made E the relevant decision in ignorance or forgetfulness of the relevant statutory provisions.

It was also Professor Shivji's submission that the Court of Appeal ignored section 27 of the Security of Employment Act. It provides, inter alia, that the decision of a Board shall be final and conclusive. In his submission, that provision makes section 4(1) of the F Permanent Labour Tribunal Act defunct. With respect, I do not agree with the learned counsel. Section 27 of the Security of Employment deals with a situation where an employee has been dismissed, which was not the case in the Pallangyo case. Section 27 (1) (a) reads in part as follows: G

> The decision of the Minister on a reference to him under Section 26, and subject to any decision on a reference to the Minister therefrom, the decision of a Board on a reference to it under this Part....
>
> (a) Shall be final and conclusive; and H
>
> (b) ....
>
> (c) ....

Section 26 of the Security of Employment Act, as I mentioned earlier, is on summary I dismissal, whereby the aggrieved employee

whose dismissal has been confirmed by a Board may refer the matter to the Minister A after giving fourteen days' notice. In my view, the Court of Appeal did not have to consider section 27 of the Security of Employment Act in the Pallangyo case because that was irrelevant. The Court of Appeal did not therefore ignore section 27 as submitted by Professor Shivji. B

I have already said that I agree that the Permanent Labour Tribunal Act deals with collective disputes while the Security of Employment Act deals with individual disputes arising out of decisions made. However, I do not agree that the Court of Appeal in the Pallangyo case in forgetfulness failed to comply with the notion of collectiveness. In the C Pallangyo case the Court of Appeal considered both the Acts mentioned above and clearly held that an aggrieved employee even under the Permanent Labour Tribunal Act must refer the dispute to a Conciliation Board within fourteen days as provided in Section 40A of the Security of Employment Act. That is condition precedent. Where an D aggrieved employee does not refer the dispute to the Conciliation Board within the period specified, then the Permanent Labour Tribunal shall not have jurisdiction to hear the dispute. That applies whether it is an individual dispute under the Security of E Employment Act or a collective dispute under the Labour Tribunal Act. That was what the Court of Appeal said in the Pallangyo case. The Tribunal was bound to follow that decision.

The Court of Appeal considered the relevant provisions of the two Acts and came to F that decision. Section 40A of the Security of Employment Act applies in so far as limitation of actions is concerned in disputes under the Permanent Labour Tribunal Act. The relevant decision of the Court of Appeal in the Pallangyo case was not given in ignorance or forgetfulness of inconsistent statutory provisions of the law as submitted. G The Tribunal was therefore bound by that decision and quite properly, in my view, refused to hear the dispute by the applicants.

H Application dismissed.

1987 TLR p30

A

[zRPz]REPUBLIC v JOSEPH MBOLOLE 1987 TLR 30 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

24th June, 1987 B

Flynote

Criminal Practice and Procedure - Appellate jurisdiction - Charge -Neglect of official duty - Whether there was a specific law imposing a specific duty on the person charged - Sec. 121 of the Penal Code.

Criminal Practice and Procedure - Lawful orders - Whether the order made by the District C Commissioner is valid in the eyes of the law.

Criminal Practice and Procedure - Repealed laws - No similar laws in existence - Whether applicable.

-Headnote

The accused, one Joseph Mbolole, a ward secretary at Ndeki Village was charged with the offence of neglect of official duty contrary to Sec. 121 of the Penal Code. That the D accused failed to perform his official duty as provided for under sec. 7(1)(a) (i) and (ii) of the Cotton Ordinance Cap 362 of the Laws. The accused is said to have failed to instruct farmers at said village to remove refuse of cotton plants in their farms as ordered E by the District Commissioner.

Held: (i) An offence of neglect of official duty under Sec. 121 of the Penal Code can be said to have been committed only if, there is a specific law imposing a specific duty on F the person charged;

(ii) the order made by the District Commissioner is not valid in law as it did not have legal backing;

(iii) there was no offence committed by the accused person; G

Case Information

Conviction quashed.

No case referred to.

[zJDz]Judgment

Chipeta J.: On 17th February, 1987, I quashed the accused's conviction set aside the H sentence and ordered that the fine paid be refunded to him forthwith. I reserved my reasons for doing so, which I now give.

The accused, Joseph Mbolole, was charged in Nzega District Court with the offence of I neglect of official duty. c/s 121 of the Penal Code.

1987 TLR p31

When the charge was read over and explained to the accused, he stated: A

> It is true. I neglect (sic) my official duty.

In the facts given by the prosecution, it was stated that the accused, as ward secretary at B Ndekeli village, failed to perform his official duty under section 7(1) (a) (i) and (ii) of the Cotton Ordinance Cap 362 of the Revised laws in that he failed to instruct the farmers at that village to remove refuse of cotton plants in their farms as ordered by the District Commissioner. C

Unhappily, as the learned state attorney pointed out, the Cotton Ordinance was repealed by section 62 of Act No. 3 of 1973 - itself repealed by the Cotton Marketing Board Act, 1984. The current law contains no provisions similar to those in section 7(1) (a) (i) (ii) of the repealed Cotton Ordinance. D

An offence under section 121 of the Penal Code can be said to have been committed only if there is a specific law imposing a specific duty on the person charged. In the absence of any such law, as was the case here, a conviction under section 121 of the Penal Code cannot be had. E

In other words, whatever order was made by the District Commissioner does not appear to have had the backing of any law.

It was for these reasons that I quashed the accused's conviction which, incidentally the Republic declined to support, and set aside the sentence. F

Conviction quashed.

1987 TLR p31

G

[zRPz]ZACHARIA LUGENDO v SHADRACK LUMILANG'OMBA 1987 TLR 31 (HC)

Court High Court of Tanzania - Mwanza

Judge Mwalusanya J

26th June, 1987 H

Flynote

Family Law - Adultery - Parties living together under the belief that they are duly married - Presumption of marriage.

Family Law - Damages - For adultery - Whether proof of marriage between parties I necessary.

1987 TLR p32

MWALUSANYA J

Family Law - Presumption of marriage - Whether can be rebutted if it is proved that the A parties had never gone through a ceremony of marriage.
-Headnote
This was a suit filed by appellant, one Zacharia s/o Lugendo against the respondent one Shadrack s/o Lumilang'omba at Magu Primary Court claiming five head of cattle as B damages for adultery.
The appellant succeeded at the trial but was unsuccessful at the District Court on the basis that there was no proof of marriage between him and his concubine one Thabita d/o Yakobo.
Held: (i) Where a man and woman live as husband and wife under the belief that they C are legally married, their cohabitation amounts to concubinage;

(ii) marriage unlike concubining is a solemn and serious institution. There ought to be evidence of customary law marriage to constitute marriage, such as handing over D ceremony by parents of the girl to the boy, or evidence of certain rites recognized by the relevant customary law of that tribe like a festival of pombe or other like ritual - Sec. s. 25 (1) (d) of Law of Marriage Act No. 5 of 1971;

(iii) the presumption of marriage may be rebutted if it can be proved that the E parties had never gone through a ceremony of marriage recognized under the law.
Case Information
Appeal dismissed. F
Case referred to.

1. Francis s/o Leo v Pascal Simon Magana [1978] L.R.T. No. 22

[zJDz]Judgment
Mwalusanya, J.: This was a suit filed by the appellant Zacharia s/o Lugendo against the G respondent Shadrack s/o Lumilang'omba at Magu Primary Court for a claim of five head of cattle as damages for adultery. The appellant succeeded at the trial but was unsuccessful at the District Court and hence this appeal.
I agree with the District Court that there was no proof of marriage between the appellant and the woman Thabitha d/o Yakobo and therefore the suit for damages for adultery H could not stand. The parties were just staying in concubinage. For the benefit of the trial court, marriage is a solemn and serious institution more than mere concubinage. Although s. 41 (a) of the Law of Marriage Act No. 5 of 1971 says that payment of I dowry is not necessary to validate marriage, yet there ought to be evidence of customary law marriage
1987 TLR p33
to constitute marriage. For example there ought to be evidence of certain rites A recognized by the relevant customary law of that tribe like a festival of pombe or any other ritual - see s. 25(1)(d) of the Law of Marriage Act No. 5 of 1971. But I cannot agree that mere act of enticing a girl to your home and staying with her in concubinage, B could constitute marriage. Something more is required for sure!!
The trial court was of the view that s.160 (1) of the Law of Marriage Act created a marriage where a man and woman had cohabited as husband and wife for over two years. He was wrong. Since 1978 this court has clarified as to the meaning of that C section, for which see the case of

Francis s/o Leo v Paschal Simon Magana: [1978] L.R.T. n. 22 (Mfalila, J.). It was held therein that, the presumption of marriage may be rebutted if it can be proved that the parties had never gone through a ceremony of marriage recognized under the law. In the case at hand the appellant concedes that he D never went through any ceremony of marriage with the woman Thabitha d/o Yakobo, and therefore there cannot be any marriage even if they have stayed over two years. It is not the law that staying with a woman for over two years creates a marriage where there was none. E

In the event the appeal must fail. The appeal is accordingly dismissed with costs.

F Appeal dismissed.

1987 TLR p33

G

[zRPz]REPUBLIC v MOHAMED ANTONI 1987 TLR 33 (HC)

Court High Court of Tanzania - Mtwara

Judge Rubama J

27th June, 1986

Flynote

Criminal Practice and Procedure - Sentencing - Sentence breaches statutory provision - H Effect.

-Headnote

The accused one, Mohamedi Antoni was convicted of two offences. He failed to display a Third Party Insurance Certificate and failed to produce a Registration Card of I the motor vehicle he was driving as ordered by the Traffic Police.

1987 TLR p34

RUBAMA J

Held: (i) The sentence imposed by the trial magistrate was illegal in that it was in breach A of the provision of section 29 (iv) of the Penal Code which provides clearly that failure to pay Shs. 200/= fine renders the accused liable to serve two months imprisonment and not four months;

(ii) that prison terms in default of fines are not served concurrently but B consecutively.

Case Information

Sentence set aside.

No cases referred to. C

[zJDz]Judgment

Rubama, J: Mohamedi Antoni was convicted of two offences: first failing to display third party insurance certificate c/s 114(1) of the Road Traffic Act No. 30 of 1973 and secondly, failing to carry registration card in the motor vehicle c/s 13(1) and (2) of the Traffic Act, 1973. D

The learned trial magistrate in sentencing the accused used the following words:

Accused is condemned to a fine of shs. 200/= for each count or 4 months imprisonment in default. E

The imposed sentence is illegal - and on two grounds. Firstly it breaches s.29(iv) of the Penal Code. The prison sentence in default of payment of shs. 200/= fine should have been two months and not four months. Secondly, prison terms in default of fines are not F served concurrently. They are served consecutively. The trial magistrate should thus have stated in passing sentence that the four months imprisonment in default of fine was in respect of fine imposed for each offence. G

As the prison sentence imposed in default of payment of fines was illegal, it is hereby set aside.

It is ordered that the sentence be amended to read:

Accused is fined Shs 200/= fine in respect of each count or suffer two months imprisonment in H default in respect of each count.

The record is to be returned to District Court, Lindi for custody.

I Appeal allowed.

1987 TLR p35

A

[zRPz]DANIEL MASALU v MUSSA SHADRACK 1987 TLR 35 (HC)

Court High Court of Tanzania - Mwanza

Judge Mwalusanya J

2 July 1987

Flynote

Customary Law - Adultery - Bride price - Marriage - Sukuma customs and rites - S.25(2)(d) B Law of Marriage Act, 1971.

-Headnote

The appellant is appealing against the decision of lower courts in not awarding him damages. The appellant claims damages of 5 head of cattle for adultery against the C respondent. He contends that he had paid 10,000/= as bride price and had waited to contract marriage. On his return from Geita, he found the woman already married to the respondent.

Held: (i) Marriage under Sukuma customary law rites, involves handing over of a D woman as a wife according to the rites stipulated under s.25(5)(d) of the Law of Marriage Act, 1971;

(ii) respondent had a powerful defence against the accusation of adultery because when he married the woman he did not know, nor could he have known even E by exercise of reasonable diligence that she was married in accordance with s.72(2) of the Law of Marriage Act, 1971.

Case Information

Appeal dismissed. F

No case referred to.

[zJDz]Judgment

Mwalusanya, J.: The appellant Daniel s/o Masalu lost in the suit in which he claimed G damages of five head of cattle for adultery against the respondent Mussa s/o Shadrack. It was at Magu

Urban Primary Court. The appeal to the Magu District Court was equally unsuccessful hence this appeal.

Like the two courts below I find that this appeal is bankrupt of merit. First as held by the trial court there was no evidence of customary law marriage. According to the H testimony of the appellant himself after he had paid bride price of Shs. 10,000/= he waited to contract the marriage when he returned from Geita. However when he returned from Geita he found the woman already married to the respondent. The payment of Shs. 10,000/- as brideprice by the appellant for sure did not constitute I marriage. Marriage would have taken place only if appellant was handed over the woman as wife

1987 TLR p36

according to the Sukuma Customary Law rites as stipulated under s.25 (5) (d) of the A Law of Marriage Act No. 5 of 1971. Otherwise as things stand, no marriage of any kind whatsoever was contracted.

Secondly as the District Court held, the respondent had a powerful defence provided under s.72(2) of the Law of Marriage Act because when he married the woman he did not know nor could he have known even by exercise of reasonable diligence that the B woman in question was married. The parents of the woman he wanted to marry said she was unmarried. What else could he have done?

In the event this appeal is dismissed with costs. Order accordingly. C

Appeal dismissed.

1987 TLR p36

D

[zRPz]STEPHEN s/o MKONE & MARA COOP. UNION (1984) LTD v REPUBLIC 1987 TLR 36 (HC)

Court High Court of Tanzania - Mwanza

Judge Moshi J

10th July, 1987 E

Flynote

Criminal Practice and Procedure - Sentencing - Plea of guilty -Whether sentence F excessive.

Criminal Practice and Procedure - Sentencing - Power of appellate tribunal to interfere.

-Headnote

The first and second appellants are appealing against sentence on the grounds that they G are not proportional to the offences charged.

They had both pleaded guilty. The first appellant was convicted of driving a motor vehicle on a public road with defects and duly sentenced to 10,000/= fine or 9 months imprisonment. The second appellant was convicted of permitting the motor vehicle to be H driven on public road.

Held: (i) It is a principle of punishment that a fine must bear reasonable relation to the accused's power to pay;

(ii) upon considering all factors pertinent to the case, the sentences passed were I in all circumstances too severe;

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MOSHI J

(iii) before an appellate tribunal interferes with a sentence, it must consider A whether the magistrate has in fact misdirected himself in any particular aspect or whether the sentence is so manifestly excessive that it is clear that there must have been a misdirection even though not explicit;

(iv) for all purpose, the sentences were so manifestly excessive that it is clear that B there must have been a misdirection on the part of the trial magistrate even though not explicit.

Case Information

Appeal allowed. C

Cases referred to.

1. R. v Saman [1971] H C D 224.
2. G. Avel and A. Hocken v R. [1970] HCD 159

Butambala, for the appellant D

Malamsha, for the state

[zJDz]Judgment

Moshi, J.: This is an appeal against sentence. The first and second appellants, who were the driver and owner of a motor vehicle respectively, were arraigned at Musoma E District Court on an indictment containing two counts under the Road Traffic Act, 1973 - Driving a motor vehicle on a Public road with defect c/o 39 (1) (a) and 5 of the Act (1st appellant), and Permitting the motor vehicle to be driven on the Public Road o/s F 39(1) and 6 of the Act (2nd Appellant). Upon being convicted on their own plea of guilty, the first appellant was sentenced to a fine of shs. 10,000/= or 9 months imprisonment in default, whereas the second appellant were to pay a fine of shs. 15,000/= or 9 months imprisonment in default. They were dissatisfied with the sentence, which appeared to them to be unduly harsh, and hence this appeal. G

Both the learned advocate for the appellants, Mr. Butambala, and the learned state attorney for the Republic, Mr Malamsha, are of the view that the sentences were, in all the circumstances, on the high side. With respect, I am, on my part, firmly of the same view. The record tells us that the learned trial magistrate did not inquire into the H appellant's power to pay the fine. Yet it is one of the most cherished principles of punishment that a fine must bear reasonable relation to accused's power to pay - see R. v Samon [1971] H.C.D 224. A fine that will prove impossible for the offender to pay, having regard to this income and financial commitments, will take away the right already I given to the offender by the law, for good

1987 TLR p38

MOSHI J

reason, to escape incarceration since he will automatically have to go to jail as an A alternative for his inability to pay the fine. It would be unjudicious and highly unfair for a court to impose such a fine as was imposed on the first appellant, a mere driver, without inquiring into his power to pay. No previous conviction was proved against any of the appellants. They were both first

offenders. The defects pertaining to the vehicles were B trivial, and they both readily pleaded guilty to the charge. All these factors ought to have earned them some leniency. There can hardly be a doubt that the sentences passed were, in all the circumstances, too severe. Going by what Gorges, C.J. (as he then was) C said in G. Avel & A. Hocken v R. [1970] H.C.D 159, in deciding whether or not it should interfere with a sentence, an appellate tribunal must consider whether the magistrate has in fact misdirected himself in any particular, or whether the sentence is so manifestly excessive that it is clear that there must have been a misdirection even though not explicity. In this case the trial magistrate did not comment on anything before passing D the sentence. He said nothing. He simply pronounced the sentence. The principles upon which he acted in sentencing the appellants were therefore not explicit. However, for the reasons already stated, I am satisfied that the sentence was so manifestly E excessive that it is clear that there must have been a misdirection on the part of the trial magistrate even though not explicity.

I therefore allow the appeal, and hereby reduce the sentence to a fine of shs. 2,000/= or three months imprisonment for the first appellant, and shs 4,000/= or six months F imprisonment for the second appellant. Since it is noted that the fines imposed by the trial court were paid, it is ordered that the appellants should each be paid a refund of the amount paid in excess.

G Appeal allowed.

1987 TLR p39

A

[zRPz]REPUBLIC v NICHOLAS ALFRED KIYABO 1987 TLR 39 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Bahati J

17, July, 1987

Flynote

Criminal Practice and Procedure - Bail - Application for bail pending appeal - Reasons for B application - Chances of appeal succeeding - Whether same as overwhelming chances of success.

-Headnote

This was an application for bail pending determination of the appeal filed by the C applicant. It was argued for the applicant that bail be granted because the appeal had overwhelming chances of success. This application was opposed by the Republic who argued that there was not only no overwhelming chances of success, but also it's very rare for bail to be granted pending appeal.

Held: (i) Perusal of records of the lower court do not disclose overwhelming chances of D success in the appeal filed by the applicant;

(ii) for an application for bail pending appeal to succeed, there must be shown an overwhelming chance of success.

(iii) "chances of appeal succeeding" is not synonymous with "overwhelming E chances of success";

(iv) there was no overwhelming chance of success in the case.

Case Information

Application dismissed. F

Cases refereed to.

1. Rex v A. B.I.T.L.R. 118
2. Hassanali Ali v R. [1968] H C D 174.

Mkamanga, for the Republic G

[zJDz]Judgment

Bahati, J.: This is an application for bail pending the determination of the appeal filed by the applicant. The reasons for this application are that the appeal has overwhelming chances of success. H

The Republic opposed this application arguing that there were no overwhelming chances of success.

Mr. Mkamanga, learned State Attorney, for the Republic cited authorities to show that it is very rare for bail to be granted pending appeal (See Rex v A. BITLR 118 and I Hassanali v Rep. [1968] H C D 174).

1987 TLR p40

After perusing the record, I am not convinced that there are overwhelming chances of A success in the appeal preferred by the applicant. The evidence consists of eye witnesses supported by documents. There may be chances of the appeal succeeding in this case but not overwhelming chances of success.

There is nothing on the record of the lower court which indicates that the appeal is B bound to succeed. The reason advanced for the release of the appellant on bail pending appeal is that the appeal has overwhelming chances of success. But this reason advanced for the bail application is not present in this case where there is both oral and C documentary evidence connecting the appellant with the offences charged. Consequently this application cannot succeed and it is dismissed.

D Application dismissed.

1987 TLR p40

E

[zRPz]TANGANYIKA STANDARD (N) LTD. & ANOTHER v RUGARABAMU ARCHARD MWOMBEKI 1987 TLR 40 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Makame JJA, Kisanga JJA and Omar JJA

28th July 1987 F

Flynote

Tort - Defamation - Libel - Damages - Whether quantum of damages too excessive.
Tort - Damages - Assessment of - Whether quantum of damages to the tune of Shs 200,000/= not adequate. G
-Headnote
This is an appeal arising from the judgement of the High Court finding for the respondent in an action for libel and awarding him damages to the tune of Shs. 200,000/=. The respondent is cross appealing on the inadequacy of the award due to inflation. H
Held: (i) The quantum of damages is justified where the trial judge takes into account all pertinent and relevant considerations;
(ii) where a judge has not based an award on the shilling value in any year, he I must properly be taken to have based the award on the shilling value at the time he was making the award.
1987 TLR p41
KISANGA JJA, MAKAME JJA AND OMAR JJA
Case Information
Appeal and cross appeal dismissed. A
No case referred to.
Mneney, for appellant
Mbuya, for respondent B
[zJDz]Judgment
Kisanga, Makame and Omar, JJ.A: This appeal arises from the judgement of the High Court (Mtenga, J.) finding for the respondent in an action for libel and awarding C him damages to the tune of shs. 200,000/-. The appeal is only against the quantum of damages, too excessive but the respondent has, at the same time cross-appealed on the in-adequacy of the award.
The trial judge found that the respondent was entitled to recover substantial damages in respect of a libel published by the second appellant in a newspaper owned by the first D appellant. Arguing the appeal before us Mrs. Mneney for the appellants complained that the award was excessive. However, we could find no merit in that contention. In arriving at the award the High Court took into account a number of factors including the wide circulation of the newspaper in which the libel was published, the refusal by the E appellants to tender an apology despite repeated invitations to do so, the loss of a prospective charcoal business overseas, the respondent's various sources of income before the publication of the libel - making allowance for possible exaggeration - and the F failure by the respondent to show the loss in his income as a result of the publication. We think that all these were pertinent and relevant considerations. The respondent had asked for one million shillings general damages but the High Court assessed it at shs. 200,000/-. Bearing in mind the factors as set above, we think that the award was quite G justified, and counsel has advanced no grounds for alleging that it was excessive.
The respondent was represented in this appeal by Mr. E. Mbuya the learned advocate who had also appeared for him in the High Court. Mr. Mbuya's main contention in the cross-appeal was that in assessing the award, the learned trial judge failed to take into H account the aspect of

inflation which had caused a fall in the value of the shilling from 1979 when the plaint was filed to 1986 when the award was made. In our view this complaint is equally without merit. We think that in the absence of ruling to the contrary an award in a judgement is deemed to be based on the value of the shilling as at the date I of the award. When making the award in the
1987 TLR p42
present case in 1986 the learned judge did not say that he was basing the award on the A value of the shilling in 1979, and indeed there is nothing in the judgement to suggest so. In the circumstances, therefore, he must properly be taken to have based on the award of Shs. 200,000/= on the value of the shilling as at the time he was making the award in B 1986. We can find no ground at all for Mr. Mbuya's suggestion to the contrary.
In the result we are satisfied that both the appeal and the cross-appeal are without substance, and are accordingly dismissed. As neither the appeal nor the cross-appeal was successful, it is further ordered that each party shall bear his or its own costs.
C Appeal dismissed.
1987 TLR p42
D
[zRPz]MONTIMONTAZA v D.B SHAPRIYA & CO. LTD 1987 TLR 42 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Makame JJA, Kisanga JJA and Omar JJA

29 July 1987 E
Flynote
Civil Practice and Procedure - Costs - Whether payable on with-drawal of appeal in civil F matters - Rules 95 and 95(4) of Court of Appeal Rules.
Court of Appeal Rules - Costs - Whether payable on withdrawal of appeals in civil matters - Rules 95 Court of Appeal Rules.
-Headnote
On the day set down for the hearing of this appeal, 19th June, 1987, advocate for the G appellant informed the court his client's intention to withdraw the appeal. The withdrawal prompted the respondent's advocate to pray for his costs but the application was resisted by the appellant's advocate submitting that under Rule 95(4) no costs are H payable.
Case Information
Appeal dismissed with costs.
No case referred to: I
1987 TLR p43
MAKAME JJA, KISANGA JJA AND OMAR JJA
Mkate, for appellant A
Lakha, for respondent
[zJDz]Judgment

Makame, Kisanga and Omar, JJ.A: On the day set down for the hearing or this appeal, 19th June 1987, Mr. Mkate for the appellant informed the Court that his client B did not wish to prosecute the appeal. Mr. Lakha prayed for his costs which Mr. Mkatte resisted, submitting that under Rule 95(4) of the Court of Appeal Rules no costs are payable. We rather think that the intention was to say that the costs are not payable except under sub-rule (4).

Withdrawal of appeals in civil matters is governed by Rule 95. Mr. Mkate duly C complied with Rule 95(1) when, on 10th June 1987, he lodged his written Notice indicating his client's intention not to prosecute the appeal. On the Written Notice Mr. Mkate indicated that M/s Lakha & Company would be served with a copy of the D Notice. We are not told whether or not they were in fact served. What we are told is that Mr. Lakha orally consented to the withdrawal. It is clear that Mr. Lakha's written consent, in terms of subrule (3), was not obtained. If Mr. Mkate had so obtained Mr. Lakha's consent, the appeal would have been struck out of the list of pending appeals. E This would have been without costs, or, as is often the case, upon terms agreed upon by the parties as to costs, as contained in the consent document.

In the present matter the situation is therefore governed by sub-rule (4), so that the appeal shall stand dismissed with costs unless we order otherwise. We could only order F otherwise if the appellant had applied to us within fourteen days after the lodging of the notice of the withdrawal, in this case any time between 10th June and the day appointed for the hearing of the appeal. This was not done, and in any event we are not inclined to deny the respondent his costs.

G Accordingly we dismiss the appeal with costs.

1987 TLR p44

A

[zRPz]MECHANICAL INSTALLATION AND ENGINEERING CO. LTD v ABUBAKAR NDENZA MAPORO AND ANOTHER 1987 TLR 44 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Omar JA

7 August, 1987 B

Flynote

Company Law - Appeals - Competence to - Whether court order to wind up a company makes it incompetent to appeal.

Civil Practice and Procedure - Appeals - Failure to obtain leave of the High Court -S.5(1) of C the Appellate Jurisdiction Act, 1979 - Rule 44 of the Court of Appeal Rules - Whether makes the appeal incompetent - Delay in filing of notice of appeal - Effect.

Court of Appeal Rules - Appeals - Failure to obtain leave of the High Court - Effect - Rule 44 of the Court of Appeal Rules. D

Court of Appeal Rules - Notice of appeal - Delay in filing notice of appeal - Effect.

Civil Practice and Procedure - Notice of motion - Delay in filing notice of appeal - Effect. E

-Headnote

This is an appeal against a winding up order of the High Court dated 4th November, 1986. Before this appeal was heard Counsel for the respondents raised a preliminary objection contending that a company becomes incompetent to appeal when a winding up order is given and that appellants failed to obtain High Court leave for such appeal and F had delayed to file Notice of Appeal.

Held: (i) Even where a liquidator has been appointed, the company is competent to appeal;

(ii) failure to obtain High Court leave and failure to file Notice of Appeal render G the appeal incompetent.

Case Information

Appeal dismissed.

Cases referred to: H

1. In re Union Accident Insurance Co. [1972] 1 WLR 640
2. Re Mawcon Ltd [1969] 1 WLR 72
3. Fowler v Bread Patent Night Light Co [1983]
4. Re Diamond Fuel [1979] 13 Ch.D 400

Rutashobya for appellants I

1987 TLR p45

OMAR JA

Balonzi, for respondents A

[zJDz]Judgment

Omar, J.A.: This is an appeal by Mechanical Installations and Engineering Company Limited against the winding up order of the High Court dated 4th November, 1986. Before this appeal was heard, Mr Balonzi, learned Counsel for the respondents (Mr. B Maporo the Creditor and Mr. Lwiza the Liquidator) raised a preliminary objection. Firstly that the company is incompetent to appeal because with the winding up the directors of the company are dismissed. He quoted Palmer's Company Law, twenty third edition - page 1138 para 85/28: C

The winding up order has the further effect of terminating the employment of servants and other agents of the company. The directors are similarly dismissed and their powers to act on behalf of the company ceases.

Three cases were cited by Palmer to illustrate the meaning of the ceasure of the powers D of directors. They are:

1. In re Union Accident Insurance Co. [1972] 1 WLR 640
2. Re Mawcon Ltd [1969] 1 WLR 72
3. Fowler v Bread Patent Night Light Co. [1983] E

In re Union Insurance it was held that, notwithstanding the appointment of a provisional liquidator, on a winding up, the Board of Directors of a Company retained the residual powers to instruct solicitor and Counsel to oppose the petition and to appeal against the F order and also to act in interlocutory proceedings including a motion to discharge the provisional liquidator.

In Re Mawcon Ltd. [1969] 1 WLR 72 it was held that the order of the court which the provisional liquidator had obtained, authorising the directors to continue the company's G

business was an effective appointment. The appointment was for some definite duration and subject to the directors making some undertakings.

Mr. Rutashobya, learned counsel for the appellant, in reply to Mr. Balonzi's submission that directors' functions and powers cease with the winding up order, quoted the H following case from Palmer's Company Law - Re Diamond Fuel (1979) 13 Ch.D 400 C.A in which it was held that although a liquidator had been appointed, the company was not precluded from appealing. Where a Company also appeals from a winding up order without joining any person responsible for costs, an application for I security for costs will be entertained.

1987 TLR p46

OMAR JA

This was very effective reply to Mr Balonzi's assertion that in the circumstances of this A case under which the winding up order was made, the company is incompetent to appeal. We are satisfied the company can appeal, provided security for costs is given.

The second was that as this suit was instituted under the Companies Ordinance, the appellant would have to obtain leave of the High Court, which was not obtained, under B section 5(1)(c) of the Appellate Jurisdiction Act and rule 44 of the Court of Appeal Rules.

Thirdly, the Notice of Appeal was irregular as it was directed at Mr. Lwiza, the liquidator. Later Mr. Balonzi conceded that he received this notice as the advocate of C the Creditor, Mr. Maporo, and he was also defending the liquidator by the way of safeguarding the interests of his client Mr. Maporo. But he added, the notice of appeal was filed very late, three months after the order of winding up, and there is no indication that extension of time to file it was applied for. D

Mr. Rutashobya in his reply stated that Mr. Balonzi must make an application for objection to the filing of appeal, supported by affidavit according to the first schedule of the Rules. He quoted rules 46(1), 82 and 100 of the Court of Appeal Rules. Therefore, E Mr Rutashobya continued, Mr Balonzi's application for the appeal to be stuck out should not be entertained, and rule 3(1) and rule 106 of the Court of Appeal Rules which Mr. Balonzi sought to rely on came too late in the day. Mr Rutashobya further explained that he did not seek leave of the Court to lodge the appeal because he did not F know that he has to send that the previous advocate who handles this case had applied to the court to have the expert winding up order set aside instead of seeking leave to appeal against the said order.

It is apparent that both Counsel have not proceeded with due diligence in the G presentation of this matter. Mr. Rutashobya was late in filing the notice of appeal and did not apply for extension of time to file the notice, nor has he made any application to the High Court to raise the preliminary objection. Mr. Balonzi failed to give reasonable notice of the objection to the court and to the other party in compliance with Rule 100 H and Rule 46 of the Rules. Although under rules 3(1) and 100 of the Rules we have discretion to adjourn the matter to enable Mr. Balonzi to file the appropriate notice in respect of the preliminary objection, we consider that is not a fit case for the exercise of that discretion. The delay in the filing of notice of appeal and the absence of any I application to extend the

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time for filing of the notice of appeal and the absence of any application to extend the A time of filing of the notice, and , worse still, the absence of leave to appeal by the High court in the cause are matters which clearly render the intended appeal incompetent.
In which case it would be futile to adjourn to accommodate Mr. Balonzi. B
These flaws were so fundamental that even if they were not raised by Mr. Balonzi we would have taken cognizance of them and strike out the appeal as being incompetent, which we hereby do. Costs to the respondent.
In perusing the proceedings, we could not help noticing certain features which appear to C us to be irregular. The application to have Mr. Lwiza appointed a provisional liquidator had been dismissed by Kazimoto, J. and, going by the record, there was no subsequent application for the appointment of a liquidator. More so in view of Mr. Balonzi's concession that the winding up order could have been made without necessary D at the same time appointing a liquidator, in which event the official receiver would have stepped in.
Another startling feature is that Mr. Balonzi is shown to be counsel for both respondents, the liquidator and the creditor, whose interests are not necessarily identical. Furthermore, a liquidator is also duty- bound to look after the interests of the company E ordered to be wound up. It is unusual for counsel to act for both a Creditor and the Liquidator. In our view, therefore, Mr. Balonzi's involvement with both respondents was quite improper; to say the least.
F Appeal dismissed.
1987 TLR p47
G
[zRPz]EMMANUEL ABRAHAMU NANYARO v PENIEL OLE SAITABAU 1987 TLR 47 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mapigano Ag JA, Mustafa JJA and Omar JJA

7 August, 1987 H
Flynote
Evidence - Credibility - Whether trial judges's refusal to accept evidence of witnesses of I the appellant is irregular - Whether failure of PWs to make any reference to the "President" in
1987 TLR p48
their testimony is a material detracting circumstance - Whether failure of petitioner to A complain to the committee at a review meeting and the absence of any complaint by the said appellant in exhibit D.15 also detracted from the evidence of the case.

Election petition - Avoidance of election - Whether addressing rally about personal achievements or past performance contravenes 8 s. 51(4), 97(a) and 108(3)(a) and B necessarily calls for avoidance of election under ss. 97(a) and 108(3)(a) - Election Act, 1985.

Election petition - Corrupt motive - Whether services through Tanzania Railways Corporation and Tanzania Dairies Ltd by respondent director for social development infer C corrupt motive.

Civil Practice and Procedure - Preliminary objection - Whether sustainable where there is disclosure of cause of complaint.

-Headnote

The appellant who had lost in a parliamentary election petition in the High Court alleged D illegal campaigns at rallies and contested the trial judge's finding on the credibility of witnesses.

Counsel for appellant submitted that the trial judge erred in generally disbelieving appellant's witnesses and that the reasons given by the judge for so doing were bad, that the judge erred in his finding of witnesses credibility. E

Held: (i) S. 51(4) does not prevent a candidate to address a rally about his achievements;

(ii) sufficient disclosure of causes of complaints entitle a judge to overrule preliminary objection; F

(iii) unreliability of witnesses, conflicts, inconsistencies in their evidence entitle judge to reject evidence;

(iv) there is nothing objectionable in assisting in social development if such assistance is innocent, not actuated by corrupt or illegal motive, namely desire to induce G votes.

Obiter dictum : Election results cannot be affected if the margin of victory votes is greater than the number of disenfranchisement vote.

Case Information

Appeal dismissed. H

Cases referred to:

1. Chrisant Majiyatanga Mzindakaya v Gilbert Louis Ngua Civil Appl No 22 of 1981 (unreported). I

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MAPIGANO Ag JA, MUSTAFA JJA AND OMAR JJA

Mahatane, for appellant A

Lobulu, for first respondent

Ihema for the second respondent

[zJDz]Judgment

Mapigano, Ag. J.A.,Mustafa and Omar, JJ.A. : This is an appeal from the B judgement of the High court at Arusha (Chua, J) dated 31.5.86, dismissing the petition of Emmanuel Abrahamu Nanyaro, the appellant herein, and awarding costs to the respondents i.e Peniel Ole Saitabau (hereinafter referred to as the first respondent) and the Hon. the Attorney General of Tanzania. The appellant and the first respondent were C candidates in the parliamentary election for the Arumeru constituency that was held on 27.10.85. Upon the conclusion of the counting of the votes and after the result of the election had been ascertained the first respondent, who was the incumbent, was declared re-elected. The first respondent polled 41,022 votes against the appellant's 36,217. D

The appellant was dissatisfied and he brought a petition in the High Court seeking the nullification of the election. He included the Attorney General as a second respondent. In the High Court the appellant was represented by Messrs Jonathan Shayo and Mahatane, Messrs Lobulu and Ojare appeared for the first respondent; and Messrs E Mlawa and Kimongoro appeared for the Attorney General. Mr. Mahatane and Mr. Lobulu have been retained by the appellant and the first respondent, respectively, to argue this appeal. The Attorney General is represented by Mr. Ihema.

The appellant challenged the victory of the first respondent on several grounds, some of F which he expressly or impliedly abandoned in the course of the proceedings in the High Court. Those grounds can suitably be classified into and discussed under three categories i.e illegal campaigns on the part of the first respondent at certain rallies; illegal G campaigns and corrupt practices on the part of the first respondent carried out in his office; and what was termed as disenfranchisement as well as irregularities at certain polling stations. In his judgement the learned trial judge held that the allegations of illegal campaign and corrupt practices were not established to his satisfaction. He found that H only 60 voters were deprived of their right to vote due to the non-availability of ballot papers. He held, however, that this shortcoming did not affect the results of the election in view of the fact that the margin of victory was 4,805 votes.

This appeal has been brought on eleven grounds. But Mr. Mahatane has found it I convenient to argue it generally and not

ground by ground, and properly so in our view, as some of the grounds are intimately A intertwined.

Mr. Mahatane has attacked the findings of the High Court in respect of the alleged illegal campaigns at the rallies. In the petition the appellant set out four such allegations. The first is that "the first

respondent throughout the period of the official campaign made unsolicited false and/or B exaggerated claims with respect to development projects started in the constituency during his previous tenure of office". The second allegation is that "the first respondent throughout the period of official campaign corruptly promised his audiences that if re-elected he would continue to raise funds and to direct all his efforts to complete the C said projects". The third allegation is that "the first respondent throughout the period of the official campaign wrongfully induced the electorate by making false and/or exaggerated claims that he had been instrumental in getting His Excellency the President of the United Republic to revoke leases of nine farms previously owned by public and D private companies and to regrant those farms to people living within the constituency". And the fourth allegation is that "the first respondent in reference to the farms referred to above corruptly promised that if re-elected he would see to it that the farms were E reallocated to individuals living within the constituency." Four corresponding issues were framed and recorded by the court and basically the question posed in each issue was whether the first respondent had actually made such claims and promises.

According to the evidence adduced by the appellant himself, the first respondent made F such claims and promises at three campaign rallies, namely at Makuyuni Oljoro and at Olasiti on 20.10.85, and at Karangai Maweni on 23.10.85. The appellant alleged that at Mbuyuni the first respondent, at the beginning of his speech, made reference to the Oljoro dispensary and to nine farms situated at Oljoro that were previously held by G public and private companies and whose rights or leases had been revoked by the President. He stated that the first respondent told the gathering that he had looked for 220,000/- for the completion of the dispensary and that he and his colleagues had seen the President and prompted him to revoke the leases, and that he promised that the nine H farms would be regranted to some of the residents of Oljoro. The testimony of his witness P.W.10 Edward Msangi was similar except that he did not mention the President in regard to the nine farms.

The first respondent denied the allegations. He stated that the only occasion when he I talked about the dispensary was when

he was answering a question from the audience. He had been asked what he had done, A as a Member of Parliament, to have the construction of the dispensary completed. He said that his answer was that there were plans to have the construction completed. He denied that he went further to say that he had obtained a sum of shs. 220,000/- for that B project. D.W. 21 Saidi Tillya, the Chairman of Oljoro, gave evidence on his side, lending him support.

The appellant alleged that the first respondent made similar remarks about the dispensary and the nine farms at the Olasiti rally. He called P.W.9 Azizi Abdallah who backed him C up. But like P.W.10 Edward Msangi's, the evidence of P.W.9 was silent on the role the President had played in making the nine farms available to the residents of Oljoro.

The first respondent's version was different. He told the court that the only occasion on which he made mention of the nine farms at that rally was when he was again responding D to a question about a certain list of landless people that had been forwarded to the District Headquarters. He recalled telling the crowd that the Government had agreed, upon certain conditions being satisfied, to revoke the leases in respect of those nine farms and that upon the satisfaction of the conditions the farms would be apportioned to E those listed. He denied that he mentioned the sum of 220,000/- in connection with the dispensary. Again D.W. 21 Saidi Tillya, who attended that meeting, gave evidence that substantially supported the version of the first respondent. F

The campaign meeting at Karangai Maweni was held on 23.10.85. If we go by the evidence of the appellant and his witness P.W. 12 David Urassa, there, as at Mbuyuni and Olasiti, the first respondent disclosed to the rally, in the course of his main address, that he had secured a sum of Shs. 100,000/= for the construction of a cattle dip and a G clinic, and that he asked the crowd to re-elect him so that he may complete the projects he had started. He produced P.W. 14 Msee Kipanga whose testimony was parallel except that he did not mention a cattle dip.

The first respondent admitted that he said something about a cattle dip at that rally, but H denied having said anything about a clinic, pointing out that there was already one at that place.

He said that he had been asked a question by one person relating to the project of converting a certain trench into a cattle dip, which project still remained on the drawing board. He said that was the occasion he referred to the sum of shs. 100,000/= I that had been allocated to the project by the appropriate district authorities. His account found
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MAPIGANO Ag JA, MUSTAFA JJA AND OMAR JJA
support in the testimony of D.W.9 william Moringe, whose power of recollection A favourably impressed the trial judge.
The first respondent also tendered the minutes of the review meetings, exhibit D.15 in answer to the allegations levelled against him. These were minutes of the meetings of the District Political Committee of the Party that were held almost every morning during the period of the B official campaign. As is now well-known, the District Political Committee of the Party is the organ that is legally charged with the organization and conduct of the election campaign. Ordinarily meetings of that committee are held on a daily basis during the period of campaign to discuss the business of the campaign in the constituency and C review what has taken place. In the discharge of these functions the Committee listens to any misgivings, grievances and comments of any of those who are officially concerned, including the two candidates. This, incidentally, is one of the distinct features D that characterize the Tanzanian Parliamentary electoral process.
It is to be observed again that the campaign meetings at Mbuyuni and Olasiti took place on 20.10.85. According to exhibit D.15, whose accuracy was not challenged, there was such a review meeting on 21.10.85 in the morning. Nothing was said by the E appellant about the false and/or exaggerated claims and promised which the first respondent allegedly made at those two rallies. It is to be observed also, as the trial judge did, that the Karangai rally was held on 23.10.85 as was the rally at a place called Makiba. Now in the review meeting that was held in the morning of 24.10.85 the F appellant did not, likewise, raise any complaint in respect of the Karangai rally, though he is on record as having raised a complaint of that nature in regard to the rally at Makiba, which complaint, however, was not a subject of any of the particulars set forth in the petition. G
The learned judge reviewed and appraised the evidence. In his vantage position the judge was not satisfied by the veracity of the witnesses called by the appellant. He noticed some discrepancies in their evidence. He pointed out, for instance, that with regard to the Mbuyuni and Olasiti rallies, P.W.9 Azizi Abdallah and P.W.10 Edward H Msangi had, unlike the appellant, not mentioned the President. The judge considered D.W. 21 Saidi Tillya to be a reliable witness. And with regard to the Karangai rally, the judge preferred the version of the first respondent which as observed found support in the evidence of D.W 9 William Moringe. The judge also adverted to exhibit D.15 and I then took the view that the absence of any
1987 TLR p53
MAPIGANO Ag JA, MUSTAFA JJA AND OMAR JJA
complaint in those minutes about what was allegedly spoken by the first respondent at A those rallies cast a real reasonable doubt in the case of the appellant.

The judge concluded by saying, in effect, that statements like "I have seen the President in connection with the nine farms at Oljoro and the President has in consequence B revoked the leases in respect of those farms and the farms will be granted to the residents of the area... were not objectionable and did not in the least offend the provision of section 97(a) of the Elections Act, 1985, as it was a true statement and not made with any intention to induce any voter to vote and so on. C

The gravamen of the appeal in regard to the alleged illegal campaigns at the rallies is against the learned judge's finding on the credibility of the witnesses. Indeed, Mr. Mahatane has put in the forefront of his argument the submission that the judge erred in D disbelieving the witnesses called by the appellant generally, and that the reasons given by the judge for doing so were bad. He has argued that if the words attributed to the first respondent by the appellant and his witnesses are true, then they constituted illegal campaigns and practices on the part of the first respondent and that they sufficed to void E the election under section 97(a) and 108 (3)(a) of the Elections Act, 1985.

In fact Mr. Lobulu had taken a preliminary point in the High Court before the hearing started. He submitted at some length that the allegations in questions were what he described as "innocuous" and that they did not afford the appellant a reasonable ground F of complaint under the Election Act. Mr. Mlawa who, as shown, represented the Attorney General expressed a similar view. The judge was not persuaded and in his ruling dated 3.4.86 he stated that he was not prepared at that stage to say that the acts complained of were harmless. G

We have considered the judgment of the High Court. In principle we are unable to fault the decision of the learned judge. The judge believed the evidence produced by the first respondent. Some of the reasons that he gave for believing that evidence seem to us to H be sound. The failure by P.W. 9 Azizi Abdallah and P.W.10 Edward Msangi to make any reference to the President in respect of what the first respondent had told the meetings at Mbuyuni and Olasiti about the nine farms was clearly a material detracting circumstances. We are disposed to think that a statement to such meetings and at such I places to the effect that the President had at the instance of a candidate revoked the leases of the farms is

doubtless the kind of statement that would have made a great impact and impression in A the mind of any attentive listener. It is not the sort of thing which would have been easily forgotten. Land appears to have been an exciting subject. The appellant himself told the court that the problem of scarcity of land in that area was a vexing

one and of long-standing. As stated earlier, the appellant did not complain to the B Committee at the review meetings and the absence of any complaint by the appellant in exhibit D.15 also detracted from the credence of the appellant's case.

We have had a look at section 97(a) of the Election Act. We share the view of the learned judge that all that the first respondent said at the three rallies, as recounted by the C first respondent and his witnesses, was fair and square and did not offend the provision of that section. We have also had a look at section 51(A) of that Act, which enjoins the organizers of the election

campaign to accord a fair and equal opportunity to each of the candidates. We are unable to read into the terms of that sub-section any D allusion to a requirement that a candidate should not address the rallies about his real achievements. We put the questions: What is an election campaign all about. Is it not true that the whole object of such a campaign is to enable the electorate to intelligibly assess and rate the competence of the candidates? And can it be sensibly denied the E past performance or non-performance is one of the usual and vital factors that the ordinary voter would invariably take into consideration in such an exercise?

Before we leave this part of the appeal we will say a few words in regard to Mr. F Lobulu's submission about the pleadings. We are unable to agree with Mr. Lobulu's contention that the pleadings in respect of those allegations should have been struck out at the beginning.

As we have already pointed out, a preliminary point was taken in that regard before the G start of the hearing. It is elementary that at that stage the judge could only look at the pleadings in the petition and nothing else. In principle he had to decide the point on the footing that the allegations of the appellant in the petition were true in manner and form. The appellant used the words "corruptly" or "wrongfully" in those pleadings and we feel H that he thereby sufficiently disclosed causes of complaint. In our view, therefore, the judge was right in overruling the preliminary objection.

But that is not to say that the petition is perfect in every respect. As we have had occasion to remark at the hearing of this appeal, the petition can, in form, hardly lay I claim to elegance, and it could

have been better drafted and should have contained details of the campaign meetings in A which the words were spoken as well as the dates on which those meetings took place.

We turn to the allegations of the illegal campaigns and corrupt practices committed by the first respondent in his office. The allegations were that "the first respondent B throughout the period between the dissolution of the National Assembly in the month of July and the polling day used the office normally used by the Member of Parliament for the constituency as a base for conducting illegal campaigns and corrupt practices by distributing and/or purportedly selling scarce commodities to prospective voters. The C first respondent, apparently ex abundanti cautela, denied the allegations in a Written Answer (there is no requirement at law to file such an Answer), stating that during the period in question he occasionally visited that office to collect mail and "for like bonafide D pursuits" and that he disclosed the same to the appropriate authorities. The point, which apparently remains unresolved and which is not the concern of the court, is whether a former Member of Parliament can use the office that had been allocated to him during the tenure of office after Parliament has been dissolved.

The principal witnesses for the appellant were P.W.2 Ataiwa Luka, P.W.4 Afrael E Reuben Kaaya, P.W.5 Edward Mbise and P.W.6 Akyoo Joseph Anael. All these resided at a place called Kingori and that might mean something. The learned judge felt that it was unsafe to act on the evidence of these witnesses and he stated his reasons. F What may be observed straightaway is

that none of the witnesses claimed to have obtained such goods from the first respondent without giving adequate money value in exchange.

P.W.2 Ataiwa testified that he bought 10 iron sheets and 5 ridges from the first respondent for a sum of Shs.1,700/=, the transaction taking place in the office in G question, which was situated in the District Party Building, at the beginning of October, 1985. That was after he had given an undertaking to campaign for the first respondent. Ataiwa was a complete stranger to the first respondent and he said that the transaction took about five minutes. By his own repeated and explicit admission, Ataiwa would not H hesitate to tell a lie when it suits him.

The testimony of P.w.4 Afrael showed that he called at the office of the first respondent in mid-October, 1985, upon being informed by Ataiwa of the availability of the iron sheets at that office. He found the first respondent in there and he told him that he was in I need of iron sheets. The first respondent replied and said

that he could sell the iron sheets to him if and when he procured five people each A prepared to buy 10 sheets and to campaign for him. He went back to Kingori and looked for the five people. He only succeeded to get one, that is P.W.5 Edward. The two went to see the first respondent in his office. According to them, the first respondent refused to sell the sheets to them, telling Afrael that he had not fully met his condition. B

The trial judge found the accounts of Afrael and Edward contradictory on the point whether there was any further talking in that office after the first respondent had declined to sell the sheets to the two men. What also happened is that under cross-examination C Afrael misdescribed the location of the District Party Building and the judge was apparently left in serious doubt as to whether Afrael had ever visited that place. And the judge took into consideration the testimony of D.W.16 Isaac Mathias to the effect that round that time P.W.5 Edward was undergoing treatment in the hospital after sustaining D a leg fracture.

The other witness, i .e P.W.6. Akyoo, told the court that he bought 16 iron sheets and 4 ridges from the first respondent in the latter's office in early October 1985. He claimed that he paid a price of Shs. 2,500/=. Like P.W.4 Afrael, this witness did not come off E well under cross-examination. His story that the sheets he purchased were meant for roofing his wattle house that had been daubed long before he bought the sheets made little sense to the learned judge. The judge remarked in the following lines: F

> The court takes judicial notice of the fact that a house daubed with mud unless roofed would have by October 1985 been so badly damaged by rains in this part of the world that no person in his proper frame of mind would do that P.W.6 allegedly did. P.W.6 did not even thatch the G alleged house with grass and wanted this court to believe that he did what he asserted.

The first respondent denied that he had sold any iron sheets to any of the witnesses. Indeed, he denied ever meeting any of them before. The judge found for him. H

The question that arises on this appeal is whether the learned judge was wrong in his refusal to accept the evidence of the four witnesses called by the appellant. The issue involved was a

factual one and as a matter of elementary principle we have to make due allowance for the fact that the judge had seen and heard the witnesses while we have not. I
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MAPIGANO Ag JA, MUSTAFA JJA AND OMAR JJA
Obviously P.W.2 Ataiwa was an unreliable witness. What fell from his own mouth A portrayed him as an unprincipled character. There were conflicts and inconsistencies in the evidence of P.W.4 Afrael and P.W.5 Edward. The court was asked to believe the story that the first respondent, who readily sold some sheets to two complete strangers, B P.W.2 Ataiwa and P.W.6 Akyoo, without attaching any condition, would almost at the same period put a condition on the sale of the same kind of goods to P.W.4 Afrael. The learned judge was entitled to reject the evidence of these witnesses and he did so.
As pointed out already, the petition charged the first respondent with corruptly C distributing and/or purportedly selling scarce goods between July, 1985 and polling day i.e 27.10.85. The first respondent admitted that during that period he had helped certain people by procuring iron sheets and ridges from M/S GALCO of Dar es Salaam which, D we are given to understand, is a subsidiary of M/s Aluminium Africa Ltd. It seemed that iron sheets were very difficult to come by and the appellant's help was needed. He said that he had the goods conveyed to Moshi by rail and that he subsequently handed over the same to certain individuals whom he named. That took place in October, E 1985. He happened to be a Director of the Tanzania Railways Corporation and by reasons of such office, he said, the goods were transported free of charge. He was candid enough to disclose that was the first time for him to do such a thing.
The lot he brought from GALCO went to D.W.3 Esther Melami, a widow of his F personal friend who had paid GALCO for them in February, 1985, D.W.6 Helena Francis, his niece who was also a widow, who had paid for them in October, 1984; D.W.8 John Lyimo an acquaintance, who had paid for them in July, 1985, and D.W.18 G Amina Laizer, a sickly woman, who had paid for them in May, 1985. Some of these people had been looking for the goods since 1983 or 1984. The first respondent also forthrightly admitted that he had the sheets of D.W.3 Esther and D.W.6 Helena delivered to their homes free. Oral and documentary evidence that was adduced by H those four people supported the first respondent's testimony.
The first respondent's evidence went on to show that in August, 1985 he procured 90 ridges for the Sura Lutheran Church and had them sent free to Arusha from Dar es Salaam by a lorry belonging to M/s Tanzania Dairies Ltd. of which company he was also I a Director. The ridges had been purchased by the Church
1987 TLR p58
MAPIGANO Ag JA, MUSTAFA JJA AND OMAR JJA
months back and they were collected from his office by the clergyman D.W.2 Isaac A Mbise who, incidentally, refused to take the oath in the witnesses-box, citing the Biblical Second Commandment.
There was no evidence that the first respondent ever solicited for votes at the time he was handing over the sheets in question. And there was clear evidence that all those B people who

received the sheets and the ridges from or through the first respondent had actually paid the manufacturers M/S GALCO the price for the goods.

The learned judge appreciated the fact that those individuals and the Sura Lutheran Church derived some benefit by way of service rendered by the first respondent and the C waiver of the freight charges. He took the view, however, that the services were gratuitous and he found no evidence that the first respondent's conduct was calculated to induce those beneficiaries to vote for him at the election. In reaching that finding the judge took into consideration the fact that the first respondent had agreed to help them D long before Parliament was dissolved, the fact that some of them were related to him and the fact that he enjoyed the privilege of transporting his goods free by virtue of being a Director of the Railway Corporation and the Tanzania Dairies. E

The learned judge was referred to the observation of this court in the case of Chrisant Majiyatanga Mzindakaya v Gilbert Louis Ngua, civil Appeal No. 22/81 (unreported), that there is nothing objectionable in a Member of Parliament assisting his constituents in their social development. F

We are satisfied, as was the learned judge, that the services the first respondent rendered constituted valuable consideration within the meaning of paragraphs (a) and (f) of section 97 of the Election Act. However the vital question is whether the first respondent was actuated by corrupt or illegal motive, namely a desire to induce those G beneficiaries to vote for him at the election. This point was forcefully canvassed before the High Court and the learned judge went into the matter at considerable length in his judgment. The judge was satisfied that there was no corrupt or illegal motive.

Mr. Mahatane has submitted that a corrupt motive was inferable from the circumstances H that attended the procurement and the deliveries of the goods. The question is whether that inference is irresistible. Mr. Mahatane has laid some stress on the fact that the free transport was unsolicited and the fact that the deliveries almost coincided with I the beginning of the official election campaign. There is some force in that argument. We are of the

1987 TLR p59

view that the judge had considered all the relevant factors and circumstances relating to A this matter and that he was justified in arriving at the conclusion he did. It was possible to infer a corrupt motive, as Mr. Mahatane contended, but we are far from being

persuaded that the circumstances pointed irresistibly and inevitably to a corrupt motive. B Indeed the circumstances, in the context of the situation, were equally, if not more, consistent with innocence.

Understandably we were not addressed on the issue of disenfranchisement. We have read the evidence pertaining to this point and we may briefly say this. We entirely agree C with the finding of the trial judge that only 60 people were unable to exercise their right to vote, on account of the shortage of ballot papers at Olkungwedo and Ambaroni polling stations. This did not affect the results of the election, given the margin of victory.

For the reasons we have stated above, this appeal is dismissed with costs. D

Appeal dismissed.

1987 TLR p59
E
[zRPz]NICHOLAS ALFRED KIYABO v REPUBLIC 1987 TLR 59 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Maina J

12 August, 1987 F
Flynote
Evidence - Credibility of witness - Documentary evidence - Signature on documents - A G person is seen writing - Whether it is necessary to call for handwriting expert or someone acquainted with the person's signature - S.69 of Evidence Act.
-Headnote
The appellant, an office manager with the National Housing Corporation, reserved room H No. 527 in New Africa Hotel for some expatriate officers who were to be accommodated and given breakfast only, paid by the corporation. The appellant obtained drinks on various dates in January 1985 and signed for them in invoices debiting room No. 527. The waiters said they served the appellant with drinks. The I appellant denied the allegation saying
1987 TLR p60
MAINA J
that he did not order or receive drinks, nor did he sign invoices. He was nevertheless A convicted and sentenced to 5 years imprisonment.
Held: (i) The trial Magistrate saw the attendants, he was impressed, they were witnesses of truth and he believed them. They knew the appellant; B

(ii) as regards the signatures in the invoices which were tendered as exhibits, the witnesses saw the appellant signing on every occasion the drinks were supplied to him;

(iii) the trial magistrate was perfectly right in holding that the oral evidence of the bar attendants or waiters who supplied the appellant with the drinks on the varies dates C and who saw him sign the invoices, proved that the signature was that of the appellant - S. 69 Evidence Act, 1967.
Case Information
Appeal dismissed. D
No cases referred to.
Mwakasungula for the appellant. E
[zJDz]Judgment
Maina, J.: This is an appeal by Nicholaus Alfred Kiyabo against conviction on nineteen counts of obtaining credit by false pretences for which he was sentenced to five years imprisonment on each count, to be served concurrently.
The appellant was an office manager employed by the National Housing Corporation. F Among his duties was to make hotel reservations for expatriate staff and other officers. In 1984, the

appellant reserved a room in the New Africa Hotel for some expatriate G officers who were working under the National Housing Corporation. The appellant sent the visitor to the New Africa Hotel where they were allocated Room No. 527. He introduced them to P.W.7 Mshindo Salum, a receptionist at the hotel. The appellant used to go to the hotel to see the guests he had sent there.

On various dates in January 1985, the appellant obtained drinks and he signed for them in the invoices debiting Room. No. 527. The waiters at the hotel, PW3 Simon Mgaya, H PW4 Ramadhani Manga, PW5 Alois Sema and PW7 Ali Ramadhani said that they served the appellant with the drinks. The appellant instructed them to write the invoices on each occasion, in the presence of the bar attendants. Later, PW1 Mshindo who had moved to the credit I

control section of the hotel, found that the bill for drinks for occupier of the room was A becoming very high.

The National Housing Corporation was responsible to pay for the room and breakfast only. There were no arrangements for the occupier to have drinks on credit. When Mshindo contacted them, they denied that they ordered the drinks. They also denied to B have signed the invoices. The Kisarawe Bricks Factory General Manager PW8 Samwel Nkwabi Ngwano and the National Housing Corporation Deputy General Manager, PW9 Andrew Shitindi, said that the appellant, as an office manager, had no authority to order drinks on credit for anyone in the hotel. All that the expatriate officers C were entitled to get was accommodation and breakfast paid for by the National Housing Corporation and later by the Kisarawe Brick Factory which became a subsidiary company after 1984. The bills allegedly signed by the appellant have not been paid for. In other words the New Africa Hotel remain unpaid up to now. The D invoices were tendered in the trial court as exhibits.

The appellant denied the charge by alleging that he did not order or receive the drinks. He denied that he signed the invoices, and claims that it is the responsibility of the bar attendants.

I think the conviction was based on credibility of the witnesses and on the documentary E evidence. Mr. Mwakasungula, learned counsel for the appellant, argued that the bar attendants should not be believed and that there was no sufficient evidence to prove the appellant's signature. On the bar attendants, I have this to say. The trial magistrate saw F them, was impressed they were witnesses of truth and he believed them. They are the persons who supplied the drinks to the appellant on different dates in January, 1985. They knew the appellant, as they had seen him on various occasions when he sent guests to the hotel. The witnesses received the orders from the appellant and they supplied him G with the drinks. I can see no reason to disbelieve them.

As regards the signatures on the invoices which were tendered as exhibits, the witnesses saw the appellant signing on every occasion the drinks were supplied to him. PW3 Simon Mganga, for example, said that on 1.1.1985 the appellant went to the bar with his H guests, not the expatriate officers, and he ordered drinks and the appellant signed in the presence of the witnesses. Similarly, PW4 Ramadhani said that the appellant signed the invoices on 14.1.85 and

on each of the subsequent dates when the witness gave the appellant drinks as ordered. So the evidence established that the appellant signed the I invoices in the presence of the bar attendants
1987 TLR p62
who supplied him with the drinks. It was therefore not necessary to call for handwriting A expert or someone acquainted with the appellant's signature. Section 49 of the Evidence Act is not relevant. What I think is relevant is section 69 of the Evidence Act, 1967 which provides as follows:

If a document is alleged to be signed or to have been written wholly or in part by any person, B the signature or the handwriting of the document as is alleged to be in that person's handwriting must be proved to be in his hand-writing.

In my opinion, the trial magistrate was perfectly right in holding that the oral evidence of C the bar attendants or waiters who supplied the appellant with the drinks on the various dates and who saw him sign the invoices, proved that the signature was that of the appellant. The appellant's mere denial did not cast any doubt on the prosecution evidence. D

The conviction is supported by the evidence and the sentence is not by any means excessive. The total sum stolen in all counts amount to Shs. 100,453/=. The sentence was proper. E

Appeal dismissed.

1987 TLR p62

F

[zRPz]REPUBLIC v MOHAMED ABDALLAH AND ANOTHER 1987 TLR 62 (HC)

Court High Court of Tanzania - Mtwara
Judge Kazimoto J

13 August, 1987 G

Flynote

Insurance Law - Motor vehicle insurance - Motor Vehicle Insurance Ordinance Cap. 169 - Disqualification - Exemption from such disqualification because of special reason - Whether family dependence on driving a motor vehicle constitutes a special reason - Special reason must be special to the offence and not to the accused person. H

-Headnote

The first and second accused pleaded guilty to two counts under the Motor Vehicle Insurance Ordinance, Cap 169 and two counts under the Transport Licencing Act. They were both sentenced to fines or imprisonment in default. The first accused was I disqualified
1987 TLR p63
KAMIZOTO J
from holding or obtaining a driving licence for 12 months, and the second accused was A exempted from such disqualification as it was found that he had advanced a special reason.

Held: (i) The second accused's mitigation did not amount to special reason. The reason B did not relate to the offence, but was personal to the accused;

(ii) special reasons must be special to the offence and not to the accused person.

Case Information

Cases referred to: C

1. Kigombe v R [1969] EA 542
2. Gardner v James [1948] 2 All ER 1069
3. Lawrence Malik v R [1973] LRT No. 12
4. Joachim Gregory v R [1975] LRT No. 44
5. Shilli Kisabu v R [1977] LRT No. 60 D
6. Sadrudin, K.M Pirani v R [1977] LRT No. 58

[zJDz]Judgment

Kazimoto, J.: Mohamed Abdallah and Omari Issa whom I will refer to as the first and second accused respectively pleaded guilty to two counts under the Transport Licencing E Act No. 1 of 1973 and two counts under the Motor Vehicle Insurance Ordinance Cap 169 of the Laws. The first accused was the driver and the second accused the owner of the motor vehicle. In the counts under the Transport Licencing Act the first accused was sentenced to a fine of Shs 1,000/= or 4 months imprisonment in default and F second accused was fined to pay shs 1,500/= or 4 months jail in default. They were also sentenced to pay shs 500.- and shs. 600/- respectively or three months jail each for the offences falling under Cap. 169. The first accused was disqualified from holding or obtaining a driving licence for 12 months and the second accused was exempted from G such disqualification as it was found that he had advanced special reasons. The record has been called up for revision of sentence in respect of the counts under the Motor Vehicle Insurance Ordinance, Cap. 169 of the Laws.

The learned State Attorney has urged that the sentences imposed in the counts in H question were inadequate taking into account the seriousness of the offence. Both accused have stated, as they did in the court below, that they are first offenders and have families to support. I agree with the learned State Attorney. An offence of driving a I motor vehicle without third part insurance risks is more dangerous than driving a motor vehicle without TLB. The

dangers involved in the event of an accident occurring are far too great. I have taken A into account the fact that accused are first offenders. I will therefore set aside the sentence imposed in respect of counts 2 and 4 and instead substitute a sentence of a fine of shs. 1,500/= or six months jail in default for first accused on count two and as for the second accused he is sentenced to a fine of shs. 2,000/= or six months imprisonment on B count four. Needless to say that as they have already paid the fines imposed by the District Court, they are now to pay the difference between the present sentence and that imposed by the District Court.

Another point which calls for decision in whether the learned Principal District C Magistrate was right in exempting the second accused from disqualification. In mitigation against disqualification the second accused stated that he was not driving the motor vehicle, that the

motor vehicle was being driven to a garage and that his family depend on driving the said motor vehicle. The learned State Attorney submitted that these are D not special reasons.
First it must be pointed out that the learned Principal District Magistrate was quite aware of the mandatory provisions of section 4(2) of the Motor Vehicle Insurance Ordinance. Next it should be added that the obligation to take out third part insurance cover rests on E the owner of the motor vehicle and not the driver. Therefore the fact that the second accused was not driving the motor vehicle does not afford special reasons. In this respect the learned Principal District Magistrate has erred in finding special reasons.
The second accused has stated that he had a family which depend on his licence as a F means of livelihood. The learned State Attorney has submitted that this is not a special reason as much as it does not relate to the offence. In other words he is stating that special reasons must be special to the offence and not to the accused person. He referred the court to the case of Whittal v Kirby [1964] 2 All ER 552 and Angelo G Muyagi v R. [1970] HCD No. 60.
There is a rich authority on whether special reasons must be special to the offence only or whether it must be special also to the offender. In Kingombe v R. [1969] EA 532 Bramble, J. held that testing a vehicle after effecting repairs does not constitute special H reasons. In that case the appellant was convicted of driving a motor vehicle on the public road without third part insurance c/s 4(1) and (2) of the Motor Vehicle Insurance Ordinance. On appeal against disqualification order the appellant contended that the vehicle was being tested after undergoing repairs and that this constituted I
1987 TLR p65
KAMIZOTO J
"special reasons". In dealing with the issue before him the learned judge stated: A

I can do no better than refer to an English case Gardner v James [1948] 2 ALL ER 1069 in which the defendant was anxious to test a motor cycle which he had just bought and B assembled himself. It has no insurance and the defendant pleaded guilty to a charge of using a motor vehicle without third part insurance. On appeal it was held that testing a vehicle in those circumstances did not constitute "special reasons" entitling the justices to refuse to suspend the licence. C
Then he went on to observe that the offence was a serious one exposing users of the road to great risks in that if they were injured they would get no compensation. In the present case the accused has pleaded that he was taking the motor vehicle to a garage. D The learned trial magistrate wrongly found this as amounting to special reasons.
Then comes the case of Lawrence Maliki v R. [1973] LRT No. 12. In this case the appellant was charged, among other offences, with causing death by dangerous driving E c/ss 44 (A) and 70 of the Traffic Ordinance Cap. 168 as amended by Act 41 of 1964. He was convicted and disqualified from holding or obtaining a driving licence for 18 months. The appellant appealed against the disqualification order on the ground that he depended on his licence for his livelihood. Onyiuke, J, stated that "the fact that he F depends on driving for his livelihood is not a special reason for not making the order of disqualification."

Lugakingira Ag. J. (as he then was) stated the matter more decisively that special reasons must be reasons connected with the offence itself and not with the offender. In G Joachim Gregory v R. [1975] LRT 44 the appellant was charged with and convicted of causing death by reckless and dangerous driving c/ss 44 A(1)(a) and 70 of the Traffic Ordinance Cap. 168. He was disqualified from driving for six months. He appealed. In dealing with "special reasons" the learned judge stated "In a string of H authorities which need not be cited this court has laid it down that special reasons must be reasons connected with the offence itself and not the accused". And in Shilli Kisabu v R. [1977] LRT N 60 the appellant was convicted of reckless driving and driving while under the influence of drink or drugs. He was sentenced and also disqualified from I driving. He advanced the following reasons for non-

disqualification, that it was his first accident, and he has a large family to support. In A dismissing the appeal against the disqualification the learned judge stated and I quote:

The court would thus not consider such factors as the size of the offender's family, the fact that he earns his living by driving or his long clean record. These are factors special to the offender B but they do not pertain to the offence.

I have demonstrated several instances which this court found no "special reasons". But the court is not unanimous on what constitutes special reasons in Sadrudin K.M Pirani C v R. [1977] LRT 58 the appellant was convicted on his own plea of careless driving c/s 50 of the Road Traffic Act 1973. He was sentenced to a fine of shs. 300/= or two months jail in default. He was disqualified from holding or obtaining a driving licence. In mitigation against non-disqualification the appellant stated that he was a pilot, that he was D required to go on duty at night, that he is always called on duty at week days and his parents are old and that he would suffer if his licence was cancelled. Biron, J. stated and I quote: E

To return to the question of the construction to be put on the term special reasons in section 27 of the Act, it does not necessarily follow that the same construction must be put on the term special reasons in section 27 of the Act as is put on the same term in section 63 of the Act, which described mandatory minimum sentences in the absence of special reasons, as the F same expression used in different sections of an Act may be construed differently. The reason why the term special reasons in section 27 is given the very narrow construction, that the reasons must be special to the offence, is a hangover from the interpretation of special G reasons in section 49 of the Traffic Ordinance (Cap.168 Sup 57) Revised Laws, which section created the offence of driving whilst the driver's efficiency was impaired by drink or drugs, which interpretation, incidentally, unless I am mistaken, stems from the construction put on H the same term special reasons by the English courts following the court of Appeal decision in Whittal v Kirby [1947] KB 194. The same narrow construction of the term special reasons is also put on the same term used in the Motor Vehicle Insurance Ordinance I

(Cap. 169-Supp 60) Revised Laws, for driving motor vehicle without there being in force a A policy of Third Part Insurance.

His Lordship went on to find special reasons as advanced by the appellant and proceeded to set aside the order of disqualification.

Whatever good reasons his Lordship had in adopting a wide and liberal construction, I B with greatest respect to his lordship, do not share the view expressed in Sadrudin K.M Pirani v R. (Supra). In a country like Tanzania driving to some people is a profession. It is a bread earning business. To say that dependence on licence for C livelihood is a special reason, is to render the provisions demanding disqualification in the absence of special reasons impotent and would defeat the whole policy behind such legislation which is to safeguard innocent road users from drivers who drive their motor vehicles on the roads. D

The policy behind Cap. 169 is to compensate the innocent road user in the event of an accident. That policy would be defeated if the court were to allow an accused driver to plead dependence on his licence as a means of his livelihood. I would consider that the interpretation in Kingombe v R., Lawrence Maliki v R. and Joachim Gregory v R. E (Supra) as to what amounts to special reasons as sound in policy. In the present case the second accused's mitigation did not amount to special reasons. They did not relate to the offence. They were reasons personal to the accused. He ought not to have been exempted.

For the above reasons the order of exempting the second accused from disqualification F is quashed and set aside. I order that the second accused be, and is hereby, disqualified from holding or obtaining a driving licence for a period of twelve (12) months from the date of this order.

G Order accordingly.

1987 TLR p68

A

[zRPz]SHOZI ANDREW v REPUBLIC 1987 TLR 68 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Mustafa JJA, Omar JJA and Mapigano Ag JA

17 August 1987 B

Flynote

Evidence - Corroboration - Sworn testimony of a child of tender years - Child's evidence without corroboration- Whether may ground conviction - S. 127(5) Evidence Act, 1967.

-Headnote

The appellant was convicted of wounding c/s 228(1) of the Penal Code and was C sentenced to 8 months imprisonment. The conviction of the appellant was based primarily on the evidence of a child of 13 years. The appellant's appeal against conviction and sentence to the High Court was unsuccessful. He was given leave to appeal to the Court of Appeal. D

Held: (i) In terms of section 127(2) of the Evidence Act, sworn testimony of a child of tender years does not need corroboration. It can be treated as any other sworn testimony, and it could form the basis of conviction; E

(ii) as regards corroboration, the unsworn evidence of a child is governed by provisions of section 127(3) of the Evidence Act 1967.

Case Information

Appeal dismissed. F

No cases referred to.

[zJDz]Judgment

Mustafa, and Omar, JJ.A. and Mapigano, Ag. J.A.: The appellant was convicted G of wounding contrary to section 228(1) of the Penal Code in the District Court of Shinyanga and was sentenced to 8 months imprisonment on 24.1.85 by the Resident Magistrate. The appellant was alleged to have caused severe injuries to the complaint PW1 Iddi Amadi, which, according to medical evidence, amounted to dangerous harm, H and one injury was termed grievous harm. PW1 was a child of 13 years of age at the material time and PW1 alleged he was assaulted by the appellant.

The trial magistrate examined PW1 in terms of sec. 127 (5) of the Evidence Act and was satisfied that P.W.1 knew the nature and meaning of an oath and P.W.1 gave evidence on affirmation.

The conviction of the appellant was based primarily on the I

evidence of P.W.1. Indeed the trial magistrate was impressed by P.W.1 as a witness. A

In his judgement the trial magistrate stated:

But P.W.1 was thoroughly examined before he gave evidence on oath. Although he is 13, he B appeared to know well the meaning and consequences of oath. In the witness box his credibility was not shaken at all during examination - in -chief, cross-examination, re-examination and finally examination by this court. This court had the opportunity to assess C his demeanour. He was nothing but a competent and credible witness.

The appellant's appeal against conviction and sentence to the High Court was unsuccessful. The appellant was given leave to appeal to this court out of time by the D High Court which certified the following points of law for our consideration:

1. In what circumstances would the evidence of a child of tender years, given an oath or affirmation or without such oath or affirmation form the basis of a conviction in the E absence of corroboration?

2. Would failure by a court to state that it has warned itself be fatal to its decision? F

We will deal with the appellant's appeal only on ground 6 which alleged that the High Court judge misdirected himself "on the evidence of children which need corroboration and which was lacking. Such evidence could not be basis of conviction".

We refer to section 127 of the Evidence Act which deals in part with child witnesses. G Section 127 (2) reads:

Where is any criminal cause of matter any child of tender years is called is a witness does not, in the opinion of the court, understand the nature of an oath, his evidence may be received, H though not given upon oath or affirmation, if in the opinion of the court, to be recorded in the proceedings, he is possessed of sufficient intelligence to justify the reception of his evidence and understanding the duty of speaking the truth.

(3) Notwithstanding any rule of law to contrary where evidence received by virtue of I sub-section (2) is given on

1987 TLR p70

behalf of the prosecution and is not corroborated by any other material evidence in support of A it, implicating the accused, the court may, after warning itself of the danger of doing so, act on that evidence, to convict the accused if it is fully satisfied that the child is telling nothing but the truth.

In our view, in terms of the above provisions, the sworn testimony of a child of tender B years, does not need corroboration. It can be treated as any other sworn testimony.

It is interesting to contrast this new development in our law with that in England regarding child witnesses. In Archbold Criminal Pleading and Practice 40th Edition para 1431 C and para 1432 and para 1433 deal with corroboration of children's evidence. Briefly if evidence is given unsworn, corroboration is necessary as a matter of law. Where however the evidence is sworn (in which case although the evidence need not be D corroborated as a matter of law) the jury should be warned of the danger of acting on uncorroborated evidence. They may convict on such evidence, if bearing the warning in mind, they are none the less convinced that the witness is telling the truth.

In so far as this appeal is concerned we are satisfied that the evidence of PW1 did not E need corroboration and that it could form the basis of a conviction.

In answer to the question of law posed by the High Court, we think that the sworn evidence of a child does not need corroboration and the unsworn evidence of a child is F governed by the provisions of section 127(3) of the Evidence Act as regards corroboration.

G Appeal dismissed.

1987 TLR p70

H

[zRPz]HAJI SHAME AND ANOTHER v REPUBLIC 1987 TLR 70 (HC)

Court High Court of Tanzania - Mwanza
Judge Sisya J

17 August, 1987

Flynote

Principles of Natural Justice - Accused refuses to cross-examine witnesses and give his I defence - Whether denied a right of hearing.

1987 TLR p71

SISYA J

Criminal Practice and Procedure - lack of confidence in magistrate - No reasons assigned A - S.65(1) Magistrates Courts Act 1984.

Evidence - Right to cross-examine and defend oneself - Refusal to exercise the right - Duty of the court.

-Headnote

The appellants were jointly tried on three counts of criminal trespass, malicious damage B to property and threatening violence c/s 299 and 89, respectively, of the Penal Code. After pleas, and before hearing, appellants demanded another magistrate. They did not advance reasons for their demand. They also asked to engage an advocate. Both applications were refused. They were ultimately convicted, sentenced and ordered to C compensate.

Held: (i) Since the appellants refused to exercise their right to cross-examine and defend themselves they cannot now properly be heard to complain; D

(ii) every magistrate is duty-bound to hear and determine any matter over which he is vested with the requisite jurisdiction. If he fails in this duty he will be guilty of abdicating from duty except where he has any personal or pecuniary interest - Section 65(1) Magistrates Court's Act, 1984; E

(iii) where the accused allege lack of confidence in the magistrate he must give his reasons for the allegation.

Case Information

Appeal dismissed. F

[zJDz]Judgment

Sisya, J.: This is a second appeal. It is a criminal appeal originating from the Dochi Primary Court of Lushoto District. Without prejudice, as is now notoriously the case with most of the proceedings which pass through the hands of the presiding Magistrate (H.K. Shellimoh Esq. Primary Court Magistrate) this present one too is fraught with G irregularities and deviations from the laid down and recognised practice and procedure. In dealing with this matter I will, nevertheless, be guided by the principle that substantial justice must be done without undue regard to technicalities which is applicable to all H matters originating from Primary Courts, see Section 37, Magistrate' Courts Act, No. 2 of 1984.

Be it as it may, mention is hereby made of the fact that in his complaint to the Dochi Primary Court the complainant in the case mentioned three persons, namely Haji Shame I Mukai, Ahmad Kaniki and Issa Kaniki, as accused persons. The record of proceedings of

the trial court, on its face cover, too, shows these three names as being the names of the A accused persons. It is only the order of appearance which differs: According to the complaint the first accused was shown to be Haji Shame Mukai and Issa Kaniki the third accused. This order was reversed on the face of the court record wherein the first accused is shown to be Issa Kaniki and Haji Shame Mukai, the third accused. In either B case Ahmad Kaniki was shown as second accused. Perhaps this is of no significance at all because its effect, if any, must be

negligible. The point to note, however, is that the arraignment and the subsequent hearing proceeded against only two of the original three C accused persons. These were Haji Shame Mukai and Issa Kaniki who, incidentally, are the appellants in this instant appeal. The record of proceedings is completely silent as to the fate of the third person, that is Ahamadi Kaniki. He was neither arraigned nor tried. The complaint against him was, as it were, merely left hanging in the air. I will also leave it there. D

These two appellants were tried jointly on three counts charging them with the offences of criminal trespass, malicious damage to property and threatening violence. These are offences contrary to section 299, 326 and 89, respectively, all of the Penal code. E Immediately after pleas were taken and before hearing commenced both appellants raised objection to Mr. Shellimoh presiding over the trial. Both appellants specifically expressed confidence in the Primary Court as an institution but they demanded another magistrate to preside over their case and not Mr. Shellimoh. F

When asked to advance reasons in support of their application (or was it a demand?) both of them stated that they would do so to the magistrate who would preside over the hearing of their case. Neither of them, therefore, advanced any reasons before the court constituting Mr. Shellimoh, as the presiding Primary Court Magistrate, and two G assessors, Messrs Shemase and Kipande. The learned Primary Court Magistrate, quite correctly, placed the matter before the assessors for their decision. The two assessors were, unanimously, of the view that the appellants' application for another magistrate was baseless because no reasons had been advanced for disqualifying Mr. Shellimoh H from presiding at the trial such as being induced by a bribe or promises thereof or fear of bias originating from a clash over some female. The assessors' was, in fact, the decision of the court as they were already in the majority Mr. Shallimoh, even then, concurred. I

The appellant's application for another magistrate was,

therefore, accordingly refused and it was, further, ordered that trial was to proceed as A scheduled. This was done.

The complainant gave his evidence and he was duly cross-examined by both appellants. Thereafter, the complainant informed the court that his witnesses were present and/or available. For unknown reasons the record of proceedings is completely silent on the B point - hearing was adjourned to the following day. Both accused were granted cash bail in the sum of Shs. 8,500/=, each, with one surety failing which the appellants were to be held in custody. It is not known whether or not the appellants met the terms and conditions of bail which, to me, appear unduly harsh. However, since this is not subject C of any complaint I do not propose to dwell on the same any longer.

On resumption on the following day one more witness gave evidence on the complainant's side. When the appellants were called upon to cross-examine him they, D one after another, refused to do so and intimated that they wanted to engage an advocate. The presiding magistrate took this as an application to stay the proceeding so that the appellants may engage legal counsel and

he put the matter to the assessors for their decision. Both assessors were of the unanimous view that the application had been E made belatedly. They, therefore, decided that hearing should proceed as scheduled, adding that the appellants could, if need be, still engage a lawyer but later and, presumably, in a high tribunal on appeal. The presiding magistrate, again, concurred with the assessors' view on this point. When the decision of the court was known to the F appellants each one stuck to his guns: The appellants stated that they had no question to ask the witness and they added, one after the other, that they had looked for an advocate. The evidence of the said witness and (subsequently, after the assessors had put across a few questions to him) the case for the complainant was, eventually, closed. G The appellants were then called upon to defend themselves in terms of Section 30 (1) (c) of the Third Schedule to the Magistrates' Courts Act, 1984. Both appellants refused to say anything, adding that they had decided to engage an advocate. The trial court took this as an election by the appellants not to say anything and after recording the H opinions of the assessors proceeded to judgement. Both accused were by unanimous decision, found guilty and they were convicted accordingly on all the three counts. They were each sentenced to pay a fine of shs.1,000/= or, in default of payment, go to jail for I three months on each of counts one and two, and on count three they were each sentenced to six months imprisonment, without

option of paying a fine. The terms of imprisonment in default of payment of a fine A imposed in counts 1 and 2 were to run consecutively with the term of imprisonment imposed in count three. The appellants paid the fines in counts 1 and 2. The appellants together with "the village", (I presume the Village Government) were ordered to pay to the complainant shs. 17,000/= by the way of compensation. B

Aggrieved, the appellants appealed to the District Court, Lushoto, against conviction, sentence and order of compensation. Save for the sentence in count three which was reduced to such term as resulted in the appellants' immediate release from prison - the C appellants had by then already been in jail for seven days - the appellants' appeal to the District Court was dismissed. Hence this present appeal to this court.

The first four grounds of appeal in the appellant's joint petition of appeal are in respect of the way the proceeding was conducted in the trial court. In the main, the appellants D complain that they were not given the opportunity of being heard at the trial.

I think it all started when the appellants, for reasons which to-date still remain undisclosed, expressed their dislike of the presiding magistrate continuing with the hearing of their case. Every magistrate is duty - bound to hear and determine or in other E words to deal with any matter over which he is vested with the requisite jurisdiction. Failing which he will be guilty of abdicating from duty. The only exception to this general rule is laid down in section 65 (1) of the Magistrate's Courts Act, 1984, and it is that no F magistrate should act in his judicial office in any proceeding in which he has any pecuniary or personal interest. To my mind, the basis of this provision of the law is to guarantee impartiality in the determination of judicial proceedings which is a primary element in the administration of justice and fair play. The judge here,

however, is, G principally, the magistrate himself and it is only in proceeding in which the magistrate has pecuniary or personal interest. What, one may then ask, of a case or proceeding in which an interested party for a reason or reasons, known or unknown to the magistrate, apprehends that there may be no impartiality in the proceeding? The adage that Justice H should not only be done but it must manifestly be seen to be done is applicable to our judicial system. The answer to the question posed above would thus appear obvious and it is that the party concerned is perfectly entitled to raise his objection in open court. The judge this time is not the magistrate concerned but the person on the receiving end. I The

important point to note here, however, is that the said objection of the presiding A magistrate was, however, not enough. They should have gone further to give reasons for their objection. As it turned out, they gave no reasons. As a result there were absolutely no grounds, let alone reasonable grounds, for their objection. For this reason B it was open to the court to proceed hearing the case as scheduled and, indeed, the Court's decision on this point cannot legitimately be assailed. It was proper and it is hereby so declared.

Next came the appellant's belated intimation that they were engaging learned counsel to defend them. It is conceded, which, indeed, I must, that every accused person or litigant C has a constitutional right to defend his/her cause fully and to the best of his/her ability, and this includes availing oneself service of legal counsel. At the same time I am fully aware that as a matter of law, advocates are not permitted to appear in Primary Courts. As aforesaid, the trial court ruled that the matter had been brought up by the appellants, D so to say, too late in the day, and the court was somewhat sceptical about the proposition put forward by the appellants. At the hearing of this appeal before me learned State Attorney, Mr. Magohe, was equally sceptical about the appellant's proposition on this point. Mr. Magohe pointed out that this matter has now passed E through two judicial tribunals in both of which advocates can and do appear but none has appeared for the appellants. Without beating about the bush, I cannot help sharing Mr. Magohe's views on this point. If, indeed, the appellants were serious on the issue of F engaging an advocate then perhaps we would not have failed to see one at some stage in these proceedings, that is to say in the District Court on first appeal or in this court on second appeal. I repeat that no advocate has over appeared for the appellants or either of them in the instant proceedings. It seems to me, in all the circumstances of G the case, that the proposition in question was no more than a mere attempt to ridicule the due process of the law. No court of justice, worth the title will be prepared to stomach such acts. The refusal by the trial court to be hoodwinked by the appellants was proper and I so hold.

I now turn to the crux of the complaints on this aspect of the matter. I do not hesitate to H point out, straightaway, that there is no truth whatsoever in the appellants' allegation that they were not given the opportunity of being heard. From the brief account of events in the trial court already narrated hereinabove - and I see no cause to reiterate the I same - it is clear that the appellants were given opportunity not merely to cross - examine PW 2 but actually to

SISYA J

defend themselves as well. Both of them refused to say anything in defence thereby A forfeiting their right to defend themselves. Surely they cannot now properly be heard to complain. I dismiss the appellants' complaints on this point as being without substance in law.

In the fifth ground of appeal, the appellants aver that nothing was destroyed in the B complaint's shamba. This is a matter of evidence which the appellants ought to have adduced at the trial but they failed to do so. The end result is that the evidence of the complaint and his witness, PW 2, was neither challenged nor contradicted and it stands unshaken. The duty of the court was to decide the case on the evidence adduced before C it. In the absence of any other evidence to the contrary the trial court had no other evidence to go by and, further, it had no cause to reject the evidence before it, the same being credible and admissible. In other words, it was legal evidence. D

The salient facts of the case which both courts found established and proceeded to act upon show that the complainant on one hand and the appellants and other villagers of Msale village on the other hand had dispute over a shamba. The matter was referred to court (see Dochi Primary Court Civil Case No. 89 of 1985). Judgement was given in E favour of the complainant who was also to be paid shs. 20,000/= as compensation. The complainant was not satisfied with the amount of compensation, he wanted more whereupon he appealed to the District Court, Lushoto. On 12.9.85 while the District Court was yet to give its decision in the matter these two appellants led other villagers F and entered the complainant's shamba without the complainant's consent. They uprooted some banana trees and set fire to some of the stalks. They also dug out some potatoes and carried them away together with some bunches of banana. On seeing this G the complainant rushed to the Police Station, Lushoto, and reported the matter. He was told that there was no transport available, apparently, to take the Police to the scene. The complainant then went and complained to the District Magistrate who then set the 17 September, 1985, as the date of judgement. According to the complainant judgement was again in his favour. Nevertheless, the appellants and other villagers H continued to cut and eat bananas from his shamba with impunity. Eventually, the complainant went and complained to the law enforcing agents. It seems as a follow up of his complaint the District Commissioner, Lushoto, visited the area. The village chairman then urged the DC to rusticate the complainant. The said chairman also I threatened to

do acts of hooliganism and lawlessness if their demand was not met. He cited the A incident at Garo as being their precedent. The DC reminded the said chairman and others that lawbreakers would be dealt with. That was commendable. I think whenever opportunity arises the people of this country must be told or reminded (whatever the case may be), not merely of their constitutional right but also of their duties and B obligations under the constitution. Section 26 of the constitution of the United Republic of Tanzania, the mother of all the laws of this country, lays down as follows, and I quote:

26. -(1)Kila mtu ana wajibu wa kufuata na kutii katiba hii na sheria za Jamhuri ya Muungano. C

(ii) Kila mtu ana haki, kwa kufuata utaratibu uliowekwa na sheria, kuchukua hatua za kisheria kuhakikisha hifadhi ya katiba na Sheria za nchi. D

Going back to the facts of the case, the evidence adduced by the complainant shows that on the night of 20/21st September the two appellants went to the house of the complainant and while raising an alarm they said that they had been told by one E Makamba and one Mbega, assistant to the Executive Secretary of CCM, to get hold of the complainant, kill him, and decapitate him, put the complainant's torso in a gunny bag and send his head to Lushoto. On hearing this the complainant got out of his house using the back door and he escaped to Lushoto. Up to the time the complainant gave F evidence in the case, three days later, he had not yet returned to his house because he feared for his life.

As aforesaid, this evidence stands unshaken and I hasten to say that it does establish all the three counts charged. The convictions were thus sound in law and the same are hereby upheld. G

Regarding the sentences, in all the circumstances of the case I cannot say that the same were manifestly excessive or that they offended some settlement principle. I, accordingly, therefore, propose to leave them undisturbed.

Now turning to the order of compensation, I am at a loss to comprehend the basis upon H which the same was made. As aforesaid, the order of compensation also affects the village which, incidentally, was not even a party to the proceeding. The order against it, therefore, offends one of the basic principles of justice, namely that a party should not be I condemned without being heard. Further, there is the third person who was to be tried jointly with these

appellants but somehow he was not so tried. Had he been tried he too may have had his A own share to make good the loss. On the whole, it is not possible to apportion the amount of compensation, nor do I consider it fair and just, on the evidence available, to rest it wholly and squarely on the shoulders of these two appellants. For these reasons, I will set aside the order of compensation. Subject to the law governing limitation of B actions I leave it to the complainant, should he feel disposed to do so, to follow up the matter in a Civil Court of competent jurisdiction.

All in all, save for the order of compensation which has been set aside, this appeal fails and it is hereby dismissed. C

Appeal dismissed.

D

[zRPz]HANS WOLFGANG GOLCHER v GENERAL MANAGER OF MOROGORO CANVAS MILL LIMITED 1987 TLR 78 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Maina J

20 August, 1987 E

Flynote

Civil Practice and Procedure - Temporary injunction - Application for - Notice of such F application to the opposite party - Whether mandatory.

Civil Practice and Procedure - Temporary injunction - Application for - Principles for granting application. G

Civil Practice and Procedure - Temporary injunction - Application to issue pending hearing of intended application for orders of certiorari and mandamus - No application for leave to apply for orders sought and obtained - Whether temporary injunction may issue. H

Administrative law - Prerogative orders - Application for temporary injunction pending hearing of intended application for orders of certiorari and mandamus - No application for leave to apply for orders sought and obtained - Whether temporary injunction may issue. I

1987 TLR p79

MAINA J

-Headnote

This was an application to set aside an ex parte temporary injunction issued by the High A Court against the applicant who was the General Manager of Morogoro Canvass Mill Ltd., and the Director of Immigration Services. The full set of facts is in the ruling.

Held: (i) The rule that the court shall in all cases, except where it appears, that the B object of granting the injunction would be defeated by the delay, before granting an injunction, direct notice of the application to be given to the opposite party, is mandatory;

(ii) if the opposite party can be served without delay, as was the position in this C case, an ex parte injunction should not be issued;

(iii) in all applications for prerogative orders, such as certiorari and mandamus leave must be sought and obtained before the application for any prerogative order is heard;

(iv) since no leave to apply for the prerogative orders of certiorari and D mandamus had been obtained the temporary injunction cannot stand;

(v) the ex-parte temporary injunction was issued against known principles governing temporary injunctions. It cannot be said that the respondent has suffered irreparable injury which cannot be adequately compensated by an award of damages for E breach of contract.

Case Information

Application succeeds.

Cases referred to: F

1. Noormohamed Janmohamed v Kassamalli Virji Madhani [1953] 20 EACA 8.
2. Devan v Bhadreasa and Another [1973] EA 358.
3. Alfred Lakaru v Town Director Arusha [1980] TLR 326.
4. Giella v Cassman Brown and Co. Ltd. [1973] EA 358. G

[zJDz]Judgment

Maina, J.: This is an application to set aside the ex-parte temporary injunction dated 28 April, 1987 issued by this court against the applicant who is the General Manager of Morogoro Canvas Mill Ltd, and the Director of Immigration Service. H

The respondent was an employee working for Morogoro Canvas Mill Ltd, as Financial Controller. The annexure to this application shows that the contract of service was between the respondent and Hebox Holland Engineering B.V. The respondent was assigned by Hebox to work for Morogoro Canvas Mill Ltd. On 1 April 1987 Hebox I wrote a letter to the respondent informing

him that his contract of employment was to terminate on 30 April, 1987 and would not A be renewed. The respondent also received a letter dated 10 April 1987 from the applicant dismissing the respondent from his duties "with immediate effect". There was another letter (annexure E to the affidavit) which instructed the respondent to vacate the B house he was occupying, not later than 30 April 1987.

The above events led to the filing of the application by the respondent for orders of certiorari to quash the decision of the General Manager, and mandamus to compel the applicant General Manager to hear the respondent in accordance with rules of natural C justice, and for an injunction to restrain applicant from harassing him.

On 20 April 1987 the matter came before the Hon. Jaji Kiongozi who issued an ex-parte temporary injunction restraining the Director of Migration services from D deporting the respondent pending the hearing of the case and also restraining the applicant from evicting the respondent from his quarter during the pendency of the case. It was Mr. Uzanda's submission that the temporary injunction was incompetent because it was in breach of Order 37 Rule 3 of the Civil Procedure Code which provides as follows: E

> The court shall in all cases, except where it appears, that the object of granting the injunction would be defeated by the delay, before granting an injunction, direct notice of the application for the same to be given to the opposite party. F

The above rule is, I think, mandatory. If the opposite party can be served without delay, an ex-parte injunction should not be issued. In this connection, Mr. Uzanda referred the court to two decisions of the Court of Appeal. In Noormohamed Janmohamed v G Kassamali Virji Madhani (1953) 20 EACA 8 at page 11 the court said:

> The requirement to give notice is clearly mandatory and it cannot be disputed that the onus of H satisfying the court that there is a good cause for dispensing with it will lie upon the applicant.

The decision in the Noormohamed case was followed in the latter case of Devan v Bhadreasa and Another [1972] EA 23 in which the parties were living in the same I premises, and therefore there

would have been no difficulty in serving the opposite party with the chamber summons. A The ex-parte interim injunction was set aside. In the present case, there is no dispute that the respondent is living near the applicant's house and had this been raised at the hearing of the application for temporary injunction, the court would have required notice to be served on the opposite party. B

Furthermore, there was no application made, no reasons were given, and also no order was made dispensing with the requirement of giving notice to the opposite party. Mr. Massati conceded that in the affidavit filed in support of the application for temporary C injunction, there was no mention made for dispensing with notice.

He also conceded that Order 37 Rule 3 of the Civil Procedure code is mandatory. However, he said that the matter was urgent and that service to the opposite party would have caused delay. With respect, I do not agree. The respondent knew that the General Manager was living in the same neighbourhood of the respondent's house. I do D not see what delay would have been caused by sending notice to the applicant. Mr. Massati also said that the application to dispense with notice can be made informally. But, with respect, there was not even an informal application to dispense with notice. The letter to the Registrar of the High Court that the matter was urgent, was not, in my E view, an application to dispense with notice to the opposite party. That letter merely asked for an early hearing.

Mr. Massati submitted further that he could not ask for notice to be served to the opposite party because the application for leave to apply for orders of certiorari and F mandamus had not been heard. In all applications for prerogative orders, such as certiorari and mandamus, leave must be sought and obtained before the application for any prerogative order is heard. In my view, the application for temporary injunction could only be made where leave had been granted. In this case, when the application G for temporary injunction was heard, no leave to apply for certiorari and mandamus had been granted by the court. It seems to me that if the court had been told on 28 April 1987 that in fact leave had not been granted to apply for certiorari and mandamus, the application for temporary injunction would not have been entertained. H The court proceeded with the hearing of that application on the assumption that leave to apply for orders of certiorari and mandamus had been granted. Since such leave had not been obtained, the temporary injunction cannot stand and for that reason alone, the temporary injunction would be set aside. I

I would go further and say that the temporary injunction

against the Director of Immigration Services was incompetent for another reason. As A Mr. Uzanda submitted, the Director for Immigration Services was not a party to these proceedings. He was a stranger to the case. The ex-parte injunction was made against a stranger. Mr. Massati conceded but said that the court had discretion under section 95 of the Civil Procedure Code to make the order. I do not agree. Section 95 gives B inherent powers to the court "to make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the court". It does not empower the court to make orders against a stranger to the case. There are

provisions in the Civil Procedure Code for joinder of parties and Mr. Masati could have applied for the C Director of Immigration Services to be joined as a party to his application, and then ask for orders against the Director. This was not done and I do not see how the injunction against the Director of Immigration Services who was not a party to the case can be supported. D

The temporary injunction against the Director of Immigration Services can be set aside for another reason. Mandamus can only lie against the Director if it were shown that he had been requested by the respondent to perform certain duties and the Director either failed or refused to perform those duties. There is no such allegation in this case. As Mr. E Salula, learned State Attorney, submitted, on behalf of the Director of Immigration Services, because the respondent's employment ceased, the residence permit he holds is invalid. The respondent has not asked for another permit. If the respondent applies for another permit in another class, that would be considered by the authorities to enable the F respondent finalise his affairs in this country.

Another point raised by Mr. Uzanda was that the ex-parte temporary injunction was issued against known principles governing temporary injunctions. Learned counsel submitted that an applicant for an interim injunction must establish a prima facie case with G a probability of success and that the facts must show that if a temporary injunction is not granted, the applicant would suffer irreparable injury which cannot be adequately compensated by an award of damages. He cited the case of Giella v Cassman Brown H and C. Ltd [1973] EA 358 at page 360. It was Mr. Uzanda's submission that in this case neither certiorari nor mandamus can lie. I do not wish to restate the facts of this case. All I can say is that it appears to me from the affidavits and the annextures that the respondent was employed by Hebox Holland Engineering B.V and was only assigned by I Hebox to work for Morogoro Canvas Mill Limited.

1987 TLR p83

MAINA J

So, there appears to be no contract of service between the respondent and Morogoro A Canvas Mill Ltd.

The applicant's letter dismissing the respondent from his employment is of no effect whatsoever. The position appears to be that Hebox informed the respondent that the B respondent's contract of service would expire on 30 April 1987. The applicant had no power to dismiss the respondent. The application to quash the decision of the General Manager Morogoro Canvas Mill Ltd, is to me meaningless because the General manager had no power to dismiss the respondent who has been notified earlier by his employer that the contract of service would expire on a specified date. C

As for mandamus, I agree that the applicant General Manager has no public duty to perform. In Halsbury's Laws of England, volume eleven, Third Edition paragraph 172 at page 54 the learned author states as follows: D

> Mandamus will lie towards any person or body in respect of anything which appertains to his or their office and in the nature of public duty. E

The applicant General Manager has no public duty to perform with respect to the respondent's employment. I agree with Mr. Uzanda that neither certiorari nor mandamus can lie.

Furthermore, mandamus cannot lie where there is some other legal remedy available. See Alfred Lakaru v Town Director Arusha [1980] TLR 326 at F page 327. In my view, the application for certiorari and mandamus has no possibility of success.
Finally I do not think that the respondent can say that he has suffered irreparable injury which cannot be adequately compensated by an award of damages. He can file a suit G against his employer for damages for breach of contract. That is a legal remedy available to him.
For these reasons, the application succeeds. The temporary injunction dated 28th April 1987 is set aside.
The respondent shall bear the applicant's costs. H
Application succeeds.
1987 TLR p84
A
[zRPz]THE ASSISTANT REGISTRAR OF BUILDINGS v FREDRICK G. KIBWANA 1987 TLR 84 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Mustafa JJA, Omar JJA & Mapigano Ag JA

29 August, 1987 B
Flynote
Administrative law - Issue of order of certiorari - Conditions.
Land law - Landlord tenant relationship - Tenant not served with notice of termination of tenancy - Whether order of certiorari can issue. C
-Headnote
A decision was made by an Assistant Registrar of Buildings to terminate the tenancy of the respondent. A prayer for the order of certiorari to issue was granted by the High Court. The decision terminating the tenancy of the respondent was quashed and he was reinstated as the lawful tenant of the premises. The Assistant Registrar of Buildings D appealed against this decision.
Held: Certiorari being a discretionary remedy for the courts to issue, it can not be issued in a case where there is already a contractual relationship between landlord and E tenant - relationship of commercial or business nature. Recourse to a court of law to adjudicate on breaches of contract would be a better procedure.
Case Information
Appeal allowed. F
No cases referred to.
[zJDz]Judgment
Omar JJA, Mustafa, JJA and Mapigano Ag JA.: This appeal emanated from an application by Fredrick G. Kibwana, now the respondent, against the Assistant Registrar G of Buildings, the

appellant for the order of certiorari to issue in order to quash the decision of the Assistant Registrar of Buildings in terminating the tenancy of the respondent.
The prayer for the order of certiorari to issue was granted by the High Court H (Mwalusanya, J); the decision of terminating the tenancy of F.G Kibwana was quashed and he was reinstated as the lawful tenant of the premises.
Against this decision of the High Court the Assistant Registrar of Buildings appealed to this court. The most important ground of appeal (and there are eleven of them) was that I the order of certiorari
1987 TLR p85
OMAR JJA, MUSTAFA JJA AND MAPIGANO Ag JA
was bad in law. Also the learned judge misdirected himself on the fact by holding that A the respondent had no alternative remedy available to him.
The learned judge quoted para 147 of Halsbury's Laws of England which states that certiorari "will issue to quash a determination for excess or lack of jurisdiction or error B of law on the face of record or breach of the rules of natural justice or where the determination was procured by fraud, collusion or perjury".
In this case the learned judge held that since the tenant was not served with any demand notices for arrears of rent or letter of notice to quit the premises, the tenant was C condemned unheard which was in breach of rules of natural justice.
Be that as it may, I hold as did my brother Mustafa, J.A. that certiorari being a discretionary remedy for the courts to issue, it cannot be issued in this case where there is already a contractual relationship between landlord and tenant - a relationship of a D commercial or business nature. The recource to the courts of law to adjudicate on the breaches of contract would be a better procedure.
I too would allow the appeal, quash the order made and set aside the ruling made by E the High Court. I would award the costs of the appeal to the appellant.
F Appeal allowed.
1987 TLR p86
A
[zRPz]IDDI FUNDI v REPUBLIC 1987 TLR 86 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

9 September, 1987
Flynote
Criminal Law - Sentencing - Assessment of sentence - Whether in assessing sentence B the prevalence of a particular type of crime is a decisive factor.
-Headnote

The appellant Iddi Fundi,was charged with six counts of stealing by public servant c/ss 265 and 270 of the Penal Code in Tabora District Court. He was found guilty and C sentenced to concurrent prison terms of imprisonment. The appellant had been employed in the Judiciary as an accounts clerk attached to Tabora Urban Primary Court. His duties included collecting and banking of revenues received by that court. Between 19th May, 1984 and 13th December, 1984 the appellant received Shs. D 22,658/75 which he did not bank and he failed to account therefor. His immediate supervisor reported the matter to the District Magistrate incharge who ordered the appellant to refund the money in two weeks. He failed to do so, and the matter was reported to the police. He was found guilty and now appeals against both sentence and E conviction.

Held: The prevalence of a particular type of crime is a very relevant factor, although other mitigating factors must also be considered.

Case Information

No case referred to. F

[zJDz]Judgment

Chipeta, J.: In Tabora District Court, the appellant Iddi Fundi, was charged on six counts of stealing by public servant c/ss 270 and 265 of the Penal Code. He was convicted as charged and was sentenced to concurrent prison terms of seven, three, G three, five, three and three years respectively.

Dissatisfied, the appellant now appeal against the convictions as well as the sentences.

The prosecution's evidence was that prior to his being convicted, the appellant was H employed in the Judiciary as an accounts clerk, and at the material time he was attached to Tabora Urban Primary Court. Among his duties was the collection and banking of revenue received in that court.

On divers dates between 19th May, 1984 and 13th December, 1984, the appellant I received a total of Shs. 22,658/75 which he did

not remit to the bank and for which he otherwise failed to account. A

When these shortages came to the knowledge of the appellant's immediate superior (P.W.2), P.W.2 took the appellant to the District Magistrate in-charge before whom the appellant admitted having converted the money to his own use. He was then given two B weeks within which to refund the money. He failed to do so, and so the matter was reported to Police.

In his defence, the appellant said that he just discovered that the money was missing from the store.

After carefully valuating the evidence, the learned senior resident magistrate was satisfied C and found as a fact that the appellant had received the money in the course of his duties, that he had not banked it as he was supposed to do, and that he had otherwise failed to account for the same. The learned magistrate accordingly inferred that the appellant had converted that money to his own use and so convicted him as charged. D

I entirely and respectfully defer to the learned magistrate's reasoning and conclusions. Both the oral and documentary evidence established beyond a shadow of doubt that the appellant had received the money and failed to account for it. At all material times he had custody of the keys of the store where the money was kept, and at no time was that E store broken into. The irresistible inference, therefore, must be that the appellant converted the money to his own use. The convictions, therefore, were fully justified.

I now turn to the sentences. The appellant was a first offender and relatively young. In F mitigation, he told the trial court that he was married with three children, and that he also had parents who depended on him. Before this Court he repeated those pleas and added that his father has since died.

In assessing the sentences, the learned magistrate took into account those factors, but he G appears to have been greatly influenced by the fact that such offences are rampant in the country.

I entirely and respectfully agree that the prevalence of a particular type of crime is a very relevant factor. However, this material factor must be considered along with other H aggravating or mitigating factors. Among the important mitigating factors are the accused's past-record, his age, the value of property involved, the degree of sophistry involved in the commission of the offence, and the reformability of the offender, not forgetting, of course, his family commitments and, where relevant, his loss of employment as a result of conviction. I

In the present case, the appellant was a youthful first offender

aged 26 years, he has a relatively large family to support, the amount involved cannot by A any means be said to have been colossal considering the long period over which the thefts were made, the manner in which the offences were committed was not at all sophisticated, and there is also the certain fact that a result of those convictions the appellant has lost his employment and benefits. B

When those factors are considered together with the aggravating factor of the prevalence of the offence, in my view, the appellant deserved some measure of leniency.

It is for these reasons that I respectfully agree with Mr Tendwa, learned state attorney, that the substantive sentence of seven years imprisonment was excessive. In my view C the minimum sentence of five years imprisonment as the substantive sentence would have met the justice of the case.

Accordingly I hereby set aside the sentence of seven years imprisonment in respect of the first count and substitute therefore a sentence of five years imprisonment to run D concurrently with the rest of the sentences which are left undisturbed. The order of compensation will also remain undisturbed.

Save for the variation of the substantive sentence, this appeal is otherwise dismissed. E

Appeal dismissed.

F

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Omari JJA, Mfalila JJA and Mapigano Ag JA

18 September, 1987 G
Flynote
Tort - Defamation - Libel - Qualified privilege as a defence - Circumstances disallowing the H defence.
-Headnote
The appellant was claiming damages against the respondents contending that the latter had written and published libellous statements against him. The trial judge found that one I of the statements was defamatory but went on to hold that the occasion

afforded the defendants the defence of qualified privilege. The issue on appeal was A whether the trial judge erred in so holding.
Held: (i) To offset the defence of qualified privilege it is not sufficient that the statement in question is consistent with the existence of malice, but must be inconsistent with bona B fides and honesty of purpose;

(ii) mere want of reasonable or probable cause is not conclusive to disrupt the defence of qualified privilege because the law first requires that a privilege should be used honestly and not that it should be used carefully; C

(iii) Obiter: The Court of Appeal cannot entertain a new ground of appeal if no supplementary record of appeal has been lodged, or no application for leave to amend the memorandum has been made and granted;

(iv) Obiter: A party is bound by his pleadings and can only succeed according to D what he has averred in his plaint and proved in evidence; hence he is not allowed to set up a new case.
Case Information
Appeal dismissed. E
Cases referred to.

1. Moore v Canadian Pacific Steamship Co. [1945] 1 All E.R. 128.

[zJDz]Judgment
Mapigano, Ag. J.A., Omar and Mfalila, JJ.A.: This is an appeal from the judgement F of the High Court at Dar es Salaam, dismissing a suit brought by the appellant Makori Wassaga against the respondents Joshua Mwaikambo and Hamisi Mpendu and awarding the costs to the respondents.
The appellant was claiming damages against the respondents contending that the G respondents had written and published libellous statements against him. The action was founded on a letter, exhibit PI, copies of which the respondents had admittedly sent to the State House and the Anti-Corruption Squad on or about 4/6/85. That letter accused the appellant of having caused his employer, M/S. Building, Hardware and Electrical H Supplies Co. Ltd. -

BHESCO for short - to suffer a loss of Shs. 1,290,014/=. The respondents were also employees of BHESCO and at the material time they were holding the posts of Acting General Manager and Security Officer, respectively. The latter alleged that the appellant had acquired three houses, one of which rented, and four motor vehicles some of which commercial. The letter also alleged that the appellant was I operating

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MAPIGANO Ag JA, OMAR JJA AND MFALILA JJA

a clearing and forwarding company. Interestingly, the appellant admitted in his evidence A that he had acquired some of those assets. The letter pointed out that the appellant was a leader (within the meaning attaching to that term by the Leadership Code) and thus implied that he had violated the stipulations of the Leadership Code with which every public servant in Tanzania should be familiar. B

It is apposite to state the background to the publication. Sometime in March, 1983, one Okidi, a Shinyanga-based building contractor, went to BHESCO in Dar es Salaam for the purpose of purchasing certain building materials. He was a new customer at that place but I am inclined to believe that he and the appellant had known each other before. C He had a letter of recommendation from the Ministry of Works. Apparently he had no cash in his hands; he only carried a cheque book and he proposed that he made the purchases by means of cheques drawn on his bank at Shinyanga. The cashiers of BHESCO were reluctant to accede to his proposal, but the appellant prevailed upon D them and he actually made a guaranty for the due acceptance and payment thereof. The appellant was then the Acting Marketing Manager and therefore the cashiers' superior. The total amount on those cheques was Shs. 1,290,014/=. The said Okidi collected the goods from the BHESCO's godown and he was in the company of the appellant when E he did so.

It transpired that Okidi had no sufficient funds in the hands of his bank to cover the cheques. The cheques were therefore dishonoured and this naturally gave management of BHESCO great concern. Frantic efforts were made to have Okidi pay the amount. F Those efforts succeeded in part: Okidi paid a sum of Shs. 621,795/20, leaving a balance of Shs. 668,218.80. The appellant was taken to task about the matter. Indeed, his conduct during the sales engendered great suspicion. And subsequently there was an occasion when he snatched the dishonoured cheques from the accountant of the G company and took them away. When he was required to return them he gave a lie that they had been robbed at Manzese. But when pressure was brought to bear upon him he surrendered the cheques.

The matter was discussed by the Management Committee of the Company and it was H resolved and directed that a report be made to the police, and that was done.

Thereafter the letter exhibit P1 was written. The name of the addressee did not appear on that letter, but as I stated earlier, copies thereof were sent to the State House and the Anti-Corruption Squad. The letter is divisible into two parts. The first part concerns the I purchase of the goods by Okidi, the dishonouring of his cheques

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MAPIGANO Ag JA, OMAR JJA AND MFALILA JJA

and the involvement of the appellant in the incident. The second part relates to the A properties the appellant had allegedly secured and the businesses he was operating.

The learned trial judge, Kazimoto, J., found that the first part of the letter was not B defamatory of the appellant; but he held, in effect, that the second part was, innuendo-wise, and for myself I consider that the judge was right. The judge then considered the defence of qualified privilege that had been set up and he took the view that the occasion afforded the respondents that defence. It has been argued on behalf of the appellant that the judge was wrong. With respect, we disagree. On the evidence on C record I consider that the judge was entitled to hold as he did.

The next question that passed was whether the respondents were motivated by malice in publishing that letter to the State House and the Anti-Corruption Squad, and I do not have to point out that the onus was upon the appellant to prove malice on a D preponderance of evidence. The respondents contended that they were actuated by a sense of duty and not malice, and the learned judge seemed to accept that contention.

Mr Maira, learned counsel for the appellant, has argued that the respondents must have E been acting out of sheer personal spite, because he said, (a) it was not established that the appellant owned all the assets mentioned in the letter and; (b) the matter regarding the dishonoured cheques had been reported to the Management Committee and the police.

That is a ponderable point. However, malice, in the strict legal use of that term, is not F identical with personal spite, it means wrong or improper motive, and in relation to the defence of qualified privilege the mere want or reasonable or problem cause is by no means conclusive. That is so because the law just requires that a privilege should be G used honestly and not that it should be used carefully. Counsel is referred to Moore v Canadian Pacific S.S. Co. [1945] 1 All E.R. 128, 133. And it is not sufficient that the statement in question is consistent with the existence of malice, it must be inconsistent with bonafides and honesty of purpose.

Mr Maira has also drawn our attention to the fact that the letter was published to P.W.6 H David Jacob who admittedly had no corresponding interest or duty to receive it. The story narrated by P.W.6 as to how he came to be possessed of a copy of the letter, which account was vehemently disputed by the respondents, strains belief considerably, I to put it mildly. But I really do not want to go into this matter in any detail, because, in my opinion, the publication

of that letter to P.W.6 cannot be entertained by this Court, as a matter of law. For these A reasons; one, it was not alleged in the plaint; two, it was never canvassed in the court below; and three, it is not raised in the memorandum of appeal. In general, and this is I think elementary, party is bound by his pleadings and can only succeed according to what he has averred in his plaint and proved in evidence; he is not permitted to set up a B new case. And in reference to appeals, it is also trite to observe that this Court cannot entertain a new ground of appeal if no supplementary record of appeal has been lodged or no application for leave to amend the memorandum has been made and granted. C

For the reasons I have stated I would dismiss this appeal and grant costs to the respondents. As the other Members of the Court agree, it is so ordered.

D Appeal dismissed.
1987 TLR p92
E
[zRPz]THUWAY AKONAAY v REPUBLIC 1987 TLR 92 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Mustafa JJA, Omar JJA and Mfalila Ag JA

21 September, 1987
Flynote
Criminal Practice and Procedure - Charges - Withdrawal and substitution of charges - F Whether omission to call upon an accused to plead to the new or altered charge renders a trial a nullity.
-Headnote
The appellant was originally charged with threatening violence, but the charge was G withdrawn and a new charge alleging arson was substituted therefor. The appellant was not called to plead to the new charge, or first appeal the judge was satisfied that provisions of s. 234 of the Criminal Procedure Act were complied with because the appellant saw no need to recall previous witnesses immediately after the charge of arson H had been substituted for that threatening violence and PW.I alone had testified.
Held: It is mandatory for a plea to a new or altered charge to be taken from an accused I person, failure to do that renders a trial a nullity.
1987 TLR p93
MUSTAFA JJA, OMAR JJA AND MFALILA Ag JA
Case Information
Appeal allowed. A
Case referred to.
1. Akbarali Damji v R. 2 TLR 137
[zJDz]Judgment
Mustafa, Omar, JJ.A. and Mfalila, Ag. J.A.: In this case the appellant was originally B charged with threatening violence but that charge was withdrawn and a new charge alleging arson was substituted thereof. The appellant was not called upon to plead to the new charge at all.
On first appeal the judge dealt with the omission in the following terms: C

On the question of non-compliance with section 234 of the Criminal Procedure Act I am satisfied the section was complied with - only that not everything was recorded in detail. For D under what circumstances could the appellant have said:

I do not need to recall the previous witnesses, immediately after the charge of arson had been substituted for that of threatening violence and P.W.1 alone had testified. E
With respect we think the first appellant judge was in error. It is mandatory for a plea to a new or altered charge to be taken from an accused person, as otherwise the trial becomes a nullity.

We would refer to an old case which had dealt with this matter and which is still good law. The case is Cr. Appeal 220/56 Akbarali Damji v R. reported F in 2 T.L.R. 137. The head note reads:

The arraignment of an accused is not complete until he has pleaded. Where no plea is taken the trial is a nullity. The omission is not an irregularity which can be cured by section 346 of G the Criminal Procedure Code.

The head note correctly sets out the findings of the Chief Justice in that appeal.

We are satisfied that, since no plea was taken, the trial was a nullity. H

We allow the appeal, quash the conviction, set aside the sentence imposed, and order that the appellant be released forthwith unless otherwise lawfully detained. We do not I think this case calls for an order of a retrial, and we will make no such order.

Appeal allowed.

1987 TLR p94

A

[zRPz]JOHN STRATON BIHIGIMONDO v REPUBLIC 1987 TLR 94 (HC)

Court High Court of Tanzania - Tabora

Judge Chipeta J

28 September, 1987

Flynote

Immigration Act, 1972 - Unlawful presence in Tanzania - Proof. B

Immigration Act 1972 - Offence of giving false information to an immigration officer - Elements of.

-Headnote

Appellant was charged and convicted of the offence of unlawful presence in Tanzania and giving false information to an immigration officer. The prosecution's evidence was C that the appellant first lied as to places where he and his parents were born. On further interrogation the appellant said that he was from Rwanda and that he came to Tanzania as a refugee, that he had since applied for citizenship and that he was registered at D Mwese settlement in Mpanda District. The replies did not satisfy the immigration officer, who without further inquiry into those statements, prosecuted the appellant in Shinyanga District Court.

Held: (i) The offence of unlawful presence in Tanzania ought to be proved beyond E reasonable doubt;

(ii) for a false statement made to an immigration officer to be an offence, the maker must have made it knowing that such officer would act or omit to act in a manner as to be detrimental to some person or contrary to what such officer would have done if F the true facts had been known.

Case Information

Appeal allowed.

No case referred to. G

Matupa, for the respondent.
[zJDz]Judgment
Chipeta, J.: In Shinyanga District Court, the appellant, John Straton Bihigimondo, was charged with and convicted of the offences of unlawful presence in Tanzania and giving H false information c/ss 26 (1)(i) and 26(2), and s.26(1)(a) of the Immigration Act, 1972, respectively. He was sentenced, respectively, to pay a fine of Shs. 10,000/= or three years imprisonment, and a fine of Shs. 5,000/= or one year imprisonment. He I failed to pay the fines and so was committed to prison.
1987 TLR p95
CHIPETA J
The prosecution's evidence from a single witness was that the appellant was taken to the A Immigration Office at Shinyanga on suspicion, and there he was interrogated by an immigration officer, one Robert Msemakweli (P.W.1) as to the appellant's legality of stay in Tanzania. At first, the appellant lied and told P.W.1 that he was born at Mpanda, B that his mother was born at Sikonge, Tabora while his father was born at Kalema. On further interrogation by P.W.1 the appellant owned up and said that he was from Rwanda, that he came to Tanzania with his parents in 1964 as a genuine refugee, that he had since applied for citizenship but was yet to be registered as such, and that he was C registered at Mwese Settlement in Mpanda District.
These replies did not satisfy P.W.1 who, without further inquiry into those statements, prosecuted the appellant in Shinyanga District Court.
In his defence, the appellant reiterated his story that he entered the country in 1964 as a D genuine refugee, that in 1967 they were given refugee permits and settled in Mwese Settlement, and that he had since applied for citizenship. He called one witness who fully corroborated his story.
In respect of this second count the appellant stated that he at first told lies to P.W.1 E because P.W.1 threatened to deport him to Rwanda and that in fact there was a motor vehicle outside P.W.1's office which P.W.1 said would be used to ferry him back to Rwanda.
On that evidence the trial court convicted the appellant as charged. F
During the hearing of this appeal, Mr Matupa, learned state attorney for the Republic, declined to support the convictions; and the appellant made available to the court documents which reveal his status in Tanzania.
I will first deal with the appeal against the conviction on the first Count. The defence G evidence that the accused entered the country in 1964 as a genuine refugee and had a permit and that he has been in Tanzania ever since was not controverted by the prosecution. I would add that official documents made available to this Court by the H appellant conclusively prove that the appellant entered the country as a genuine refugee and that his status as such has not been revoked. Among those documents is a letter from the Mpanda District Immigration Officer dated 17th February, 1987, and a letter from the Divisional Secretary of Mwese, Mpanda District. I
1987 TLR p96
CHIPETA J

That being the position, the defence evidence ought to have raised reasonable doubt in A the mind of the trial Court; and as pointed out above, the documentary evidence now available clearly demonstrate the appellant's innocence. Indeed, I think Mr Matupa hit the nail on the head when he stated in his submissions that the manner in which P.W.1 B dealt with the appellant demonstrated harassment. I say so because P.W.1 could easily have obtained the documents now available to this court if he seriously intended to find out the truth. He made no such attempt!

Even assuming for the sake of argument, that the appellant's papers as a refugee had expired and not renewed (there is no evidence to that effect), the appellant's lawful C presence in the country could still have been justified by proviso (ii) to subsection 91) of section 10 of the Immigration Act, 1972 which provides that where any permit or pass expires or is cancelled no further permit or pass is issued, the presence in Tanzania of the former holder to thereof is not unlawful by reason only of the provisions of that D subsection unless the Minister otherwise directs. Those provisions, as Mr Matupa rightly pointed out, ought, to be read together with those of section 26 of the Act.

In short, the appellant's guilt in respect of the first count was far from proved - let alone E beyond reasonable doubt.

I now turn to the evidence in respect of the second count. Like Mr Matupa, I am inclined to believe the appellant's story that he made the false statements because P.W.1 F subjected him to threats. Mr Matupa went on to submit thus since the materially false statements were made as a result of threats, those statements were involuntarily made and so were inadmissible under section 27 of the Evidence Act, 1967.

With respect, I am unable to go along with that logic. I do not think that the provisions G of section 27 of the Evidence Act, 1967 are relevant here. Those provisions talk of the admissibility and inadmissibility of confessions. In the present case, it has not been suggested that the materially false statements amounted to confessions. What P.W.1's evidence amounts to on this point is that in the court of the interrogation the appellant made statements which were a mixture of truth and falsehood. The appellant admitted H this.

In my view, the question for decision here is whether the false statements made by the appellant in those circumstances justified a conviction. The offence created by section I 26 (1)(a) of the Immigration Act, 1972, it seems to me, has the same elements as

those creating a similar offence by section 122 of the Penal Code. If am right in this A view, then it must follow that for a false statement made to an immigration officer to be an offence, the maker must have made it knowing that such officer would act or omit to act in a manner as to be detrimental to some person or contrary to what such officer would have done if the true facts had been known. B

In the present case, P.W.1 was given false as well as truthful statement. He was, therefore, unlikely to act to the detriment of any person or contrary to what an immigration officer would act because he knew the true facts. To my mind, therefore, such false statements, made in the

circumstances as those in which the appellant made to C P.W.1 are not those which the legislature in its wisdom could have had in mind.
This once again supports my inclination that the summary manner in which the appellant was dealt with is suggestive of harassment. D
On the basis of the foregoing, I hereby quash both the convictions and set aside the sentences. Should the appellant be still in custody, he shall be released forthwith unless otherwise lawfully detained. If he subsequently paid the fine, the same shall be refunded to him forthwith. E
Appleal allowed.
1987 TLR p97
F
[zRPz]RASHIDI ALLY v REPUBLIC 1987 TLR 97 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

28 September, 1987 G
Flynote
Evidence - Identification of accused - Identification by description - Terms of that description ought to be given - Evidence must be watertight.
Evidence - Alibi - Defence of alibi - Burden of proof. H
-Headnote
The Appellant was convicted of the offences of personating a public officer and obtaining money by false pretences. The only description given by witnesses who saw the imposter at night was that the imposter wore a black suit. The appellant put forward I a defence of alibi which the trial District Magistrate rejected as mere contrivance.
1987 TLR p98
CHIPETA J
Held: (i) In order to justify a conviction solely on evidence of identification such A evidence must be watertight;

(ii) description, and the terms of that descriptions on identification of the accused, are matters of the highest importance of which evidence ought always to be given;

(iii) where the accused person puts forward the defence of alibi, he does not B thereby assume the burden of proving such alibi. It is sufficient if such alibi introduces reasonable doubt in the prosecution's case.
Case Information
Appeal allowed. C
Cases referred to:

1. R. v Eria Seburato [1960] E.A. 174
2. Mohamed bin Allui v R 9 EACA 72.

[zJDz]Judgment

Chipeta, J.: The appellant, Rashid Ally, was convinced of the offences of personating a D public officer and obtaining money by false pretences c/ss. 100(2) and 302 of the Penal Code. He was sentenced, respectively, to one year and three years imprisonment, which sentences were ordered to run concurrently. E

The prosecution's evidence was to the effect that on 4th August, 1986, the complainant (P.W.1) and his two colleagues, P.W.2 and P.W.3, drove to Nzega from Mwanza in a Landrover.

On their arrival at Nzega they were confronted by a man who introduced himself to them F to be Corporal Joseph of the Police traffic section. The man demanded identity cards of the witnesses. P.W.2 and P.W.3 produced theirs, but P.W.1 did not have his own. The man then asked P.W.1, who was the driver of the Landrover to produce his log book; but P.W.1 did not have it. Thereupon the man told the three witnesses to go with him to the Police station. G

After moving a short distance, the man ordered P.W.1 to stop, which P.W.1 did, and the man demanded to be given Shs. 1,000/= "So that the matter could be settled". P.W.1 then gave the man Shs. 1,000/=, then the man left.

Next day, the three witnesses learnt that there was no Police officer known as Corporal H Joseph at Nzega. It was then that the three witnesses realized that they had been taken for a ride and that their "Police corporal" was no more than an imposter. The matter was then reported to Police.

The prosecution witnesses went on to testify that some two days later, P.W.2 and I P.W.3 saw the appellant at an hotel at Nzega,

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CHIPETA J

and they identified him to be the man who had posed as Corporal Joseph. So they A arrested him and took him to the police station.

The appellant put up a defence of alibi. He told the trial court that on 24th July, 1986, he left Singida for Dodoma in answer to a court summons issued by Dodoma Urban Primary Court in a case in which he was the complainant. He produced the said B summons as an exhibit. He went on to tell the trial court that on that day the case was adjourned to 3rd August, 1986 as some of the witnesses did not turn up, and on 3rd August, 1986, the case was adjourned to 14th August 1986 as one of the accused persons was sick. He then left Dodoma for Tabora by train on 4th August, 1986, the C day the alleged offences were committed, and he arrived at Tabora at 10.30 p.m. He produced a Railway train ticket showing Manyoni to Tabora as an exhibit. He went on to say that he travelled to Nzega on 5th August, 1986 where he arrived on 6th August, 1986, and to his surprise, he was arrested by P.W.2 and P.W.3. D

The learned trial district magistrate believed the prosecution witnesses to be truthful and, after discussing the relevant law, held that the witnesses correctly identified the appellant. He rejected the appellant's alibi as mere contrivance.

There is more than ample authority for the proposition that in order to justify a conviction E solely on evidence of identification, such evidence must be watertight. (See R. v Eria Sebwato [1960] E.A. 1974). It is equally well settled that in any case in which there is a question as to the identity of the accused, the fact of there having been given a description and the terms of that

description are matters of the highest importance of F which evidence ought always to be given. (See Mohamed bin Allui v R., 9 E.A.C.A. 72).

In the instant case, the incident occurred at night. The only description given by the witnesses was that the imposter wore a black suit. None of the identifying witnesses G gave any other description of the culprit either to the Police or in court. Like the learned state attorney who, incidentally, declined to support the convictions, I am not persuaded that a black suit is a sufficient identifying mark in such circumstances.

The evidence of identification is further weakened by the appellant's alibi. That alibi was H not cracked and so I feel that to call it a contrivance can hardly be justified. The law is that where an accused person puts forward a defence of alibi, he does not thereby assume the burden of proving such alibi. It is sufficient if such alibi introduces reasonable I doubt in the prosecution's case. That was the case here.

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For these reasons, it would not be safe to sustain the appellant's convictions. The same A are accordingly hereby quashed and sentences set aside. The appellant shall be released from custody forthwith unless further held in some other lawful connection.

B Appeal allowed.

1987 TLR p100

C

[zRPz]DIRECTOR OF PUBLIC PROSECUTION v PETER ROLAND VOGEL 1987 TLR 100 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Makame JJA and Kisanga JJA

30 September, 1987 D

Flynote

Evidence - Evidence not produced in court of first instance - Whether admissible on appeal.

Judicature and Application of Laws Ordinance, Cap 453 - Adversarial system. Its modification in Tanzania. E

Extradition Act, 1965, - Nature of extradition proceedings.

-Headnote

The District Court of Ilala and the High Court, on appeal, dismissed extradition proceedings instituted against the respondent because the prosecution had tendered evidence which was found to be unauthentic and of no evidential value. On appeal the F appellant adduced new evidence concerning the existence of extradition arrangements between the United Republic of Tanzania and the Federal Republic of Germany. The respondent submitted that the Court of Appeal should not, in an adversarial system, interfere with findings of lower courts on the basis of evidence which came to light G subsequent to conclusion of proceedings in the lower courts.

Held: (i) The court is not justified in interfering with findings of the lower courts in order to enable the prosecution to adduce evidence which it had no opportunity to produce at H the time of the proceedings in the court of first instance;

(ii) the adversarial system in this country has undergone considerable modification in its application under the proviso to s.2 of the Judicature and Application of Laws Ordinance, Cap. 453; I

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NYALALI CJ, MAKAME JJA AND KISANGA JJA

(iii) by virtue of section 7 of the Extradition Act, 1965, extradition proceedings A are a preliminary inquiry and not a trial;

(iv) in a preliminary inquiry, as intended by Parliament up to 1965, the role of the Magistrate was not that of an umpire or referee, but that of an active participant in the inquiry into the matters at hand. B

Case Information

Appeal allowed.

Cases referred to:

1. Salehe Mahamburi v Noseni Mrinda [1969] HCD n. 276 C
2. John Magendo v N.E. Govani [1973] LRT No. 60

Shio, for appellant

Marando and Maira, for respondent

[zJDz]Judgment

Nyalali, C.J., Makame and Kisanga, JJ.A.: This is an appeal by the Director of D Public Prosecutions in respect of extradition proceedings which originated in the District Court of Ilala District at Kisutu, Dar es Salaam. The Director of Public Prosecutions E hereinafter known as the D.P.P. is represented before us by Mr Shio, learned State Attorney whereas the respondent, namely one Peter Roland Vogel of German nationality, is represented by two advocates, that is Messrs Marando and Maira. On the 28th February, 1987 the Respondent was brought before a Resident Magistrate in F the District Court of Ilala District at Kisutu, Dar es Salaam for extradition proceedings under the Extradition Act, 1965. He was then remanded in custody. Six days later on the 6th of March, 1987, the case came up for hearing but it could not proceed to hearing because preliminary objections were made by the Advocates for the Respondent, G concerning the legality and the jurisdiction under which the Respondent was brought before the court. After considering those objections, the learned Resident Magistrate, Magessa PRM, ordered the prosecution to show compliance with the procedural requirements and whether there were any binding extradition arrangements between the H United Republic of Tanzania and the Federal Republic of Germany to enable the magistrate to proceed with the hearing of the extradition proceedings. In order to enable the prosecution to do so, the magistrate adjourned the case to the 9th March, 1987.

When the proceedings resumed as fixed on the 9th March, 1987, both the court and the I parties were satisfied that the procedural

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requirements for bringing the Respondent before the magistrate had been complied with. A However, neither the court nor the Advocates for the Respondent were satisfied on the preliminary issue of existence of a legally binding extradition arrangement between the two countries. The material produced by the prosecution side consisted of firstly, an uncertified diplomatic Verbal Note dated 14th April, 1964 from the Embassy of the B Federal Republic of Germany at Dar es Salaam, addressed to the Ministry of External Affairs and Defence of the United Republic of Tanzania. Secondly, the prosecution cited various legal matters both under domestic and international law in support of its contention. At the end of the day in court, the prosecution case turned on, among other C things, the authenticity of uncertified diplomatic Verbal Note. The learned resident magistrate found it to be of no evidential value. Consequently the preliminary objection was upheld and the proceedings were dismissed and the Respondent was discharged. D

The D.P.P. was aggrieved by the decision of the learned resident Magistrate and he appealed to the High Court. The High Court, Mapigano, J., however concurred with the findings of the lower court, and dismissed the appeal. The D.P.P. was further aggrieved by the decision of the High Court hence this appeal to this court. E

Three grounds were submitted by the D.P.P. in support of the appeal. Mr Shio, in answering questions from members of this court in the course of the hearing of the appeal informed the court that new evidence concerning the existence of extradition F arrangements between the two countries had come to light subsequent to the conclusion of the proceedings in the two courts below. The evidence consists of certified photostatic copies of diplomatic exchange notes between the United Republic of Tanzania and the Federal Republic of German made between 11th December, 1963 and G 14th April, 1964, that is, after the second anniversary of Independence and before the commencement of the Extradition Act, 1965.

The important issue before this court is whether we should interfere with the concurrent finding of the two courts below on the basis of the evidence which is said to have come H to light subsequent to the conclusion of the proceedings in the two courts below. Advocates for the Respondent have submitted that this court cannot do so because it was entirely due to the fault of the prosecution that such evidence was not available to the court of first instance. However under the adversarial legal system which applies to I the

United Republic of Tanzania, the court cannot be expected to take the initiative to obtain A evidence since to do so would make the court appear to be prosecuting the case. On the other hand Mr Shio, learned State Attorney, has urged the court to interfere with the findings of the two courts below to enable the prosecution to adduce the evidence which B it had no opportunity to produce at the time of the proceedings in the court of first instance.

With due respect to Mr Shio, we do not think that this court would be justified in interfering with the findings of the two courts below on the grounds advanced by him. The record of these proceedings clearly shows that the prosecution had ample C opportunity to seek and obtain the

necessary evidence either form the Ministry of Foreign Affairs of this country of from the Embassy of the Federal Republic of Germany. It would seem that the failure to obtain the necessary evidence was due to a mixture of incompetence, negligence and lack of seriousness on the prosecution sid. This D unsatisfactory state of affairs appears to have persisted even in respect of the proceedings before this court, as illustrated by the fact that the existence of the relevant diplomatic exchange of notes became known to the court only in answer to questions E asked by members of this court. Had we not asked these questions, this appeal would most likely have been concluded without the court being aware of the alleged diplomatic exchange of notes which took place between the two countries before the enactment and commencement of the Extradition Act, 1965.

However, the lack of merits in the ground advanced on the side of the D.P.P. does not F necessarily mean that the appeal fails. We have to consider the totality of the case in the interests of justice. We start with the submissions made by the learned advocates for the Respondent. With due respect we do not think that the grounds advanced on the G respondent's side constitute good reason to prevent this court from interfering with the findings of the two courts below. Although it is correct to say that we have an adversarial legal system in this country, it is important to remember that the adversarial system in this country has undergone considerable modification in its application. This H modification can be seen in a number of authorities decided by the High Court. We only need to cite two of these authorities to illustrate the position.

The first case is that of Salehe Mahamburi v Noseni Mrinda [1969] (HCD). 276. In that case, Georges, C.J. as he then was, stated: I

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NYALALI CJ, MAKAME JJA AND KISANGA JJA

Looking at the matter from the point of view of English law, I would agree with the view A expressed by the District Magistrate. Proof of title here is, however, quite a difficult thing where there are no deeds showing ownership of customary land and seldom any documents evidencing a transfer. To decide cases on the basis of onus of proof, as in England, is not B desirable and would certainly not be understood. ... All effort should be made, therefore, to have all the facts brought out, rather than to depend on rules as to burden of proof - which operate fairly when legal advice is available to both sides, but not otherwise. C

The second and more relevant case is that of John Magendo v N.E Govani [1973] LRT n. 60. In that case Biron, J. as he then was stated: D

It is deplorable that any Bench-holder could treat court proceedings before him as a football match, with doubtless, the parties themselves being the ball and kicked around by their counsel, however inept they may be. E

It is the duty of a judge or magistrate conducting a case, to try the case and determine it on its merits doing justice to each party according to law. As remarked by Lord Godard, C.J. In R. v David Flynn, 52 Cr. App. R. 17. "Criminal trials are not a game. The object of a criminal trial is F to acquit the innocent and convict the guilty". Likewise the object of a civil trial is to do justice to the parties and determine the dispute between them judiciously in accordance with

the law. It cannot be overstressed that it is the duty of a magistrate trying a case, not to sit back as a spectator or, to use the magistrate's terminology, a referee, and watch the proceedings, but to G try the case before him, whether a criminal or a civil one. And in order to arrive at a just decision, in civil case, the magistrate is expressly empowered by the Civil Procedure Code to summon witnesses of his own motion, and in criminal cases, he is not only empowered to H summon witnesses of his own motion, but it is mandatory for him to do so, if it appears essential to the just decision of the case. For the benefit of the magistrate it is pointed out that failure by a court to call witnesses when the justice of the case required it, has resulted I

in the court's decision having been reversed on appeal to a superior tribunal. A

These decisions of the High Court of Tanzania with which we totally agree, illustrate the manner in which the High Court judges of this country have been exercising their powers B as granted by the proviso to section 2 of the Judicature and Application of Laws Ordinance, Cap. 453, by applying English law, "Only so far that the circumstances of Tanzania and its inhabitants permit, and subject to such qualification as local circumstances may render necessary". C

There is another reason why the objections raised by Advocates for the Respondent are insufficient to prevent this court from interfering with the findings of the two courts below. It is apparent that by nature extradition proceedings by virtue of section 7 of Extradition D Act, 1965, are a preliminary inquiry and not a trial. Obviously, the preliminary inquiry intended by Parliament under section 7 of the Act is that which was in existence at the time of the commencement of the Act, and not what is in use today after major amendments to the law, were made in subsequent years resulting in a purely formal E preliminary inquiry. In a preliminary inquiry as intended by Parliament up to 1965 the role of the magistrate was not that of an umpire or referee, but that of an active participant in the inquiry into the matters at hand.

We have asked ourselves, whether in these extradition proceedings, the learned F Resident Magistrate fully discharged his duties in conducting the inquiry into the matters that were raised before him. We have already mentioned that an uncertified copy of a diplomatic Verbal Note was tendered by the prosecution in the course of hearing the preliminary objection made by the Advocates for the Respondent. We agree with both G the learned Resident Magistrate, and Mapigano, J. that this unauthenticated diplomatic Verbal Note has no evidential value. But, that does not mean that the document has no significance whatsoever in the inquiry. In proceedings of this nature, such document ought at least to have put the magistrate on notice that proper and relevant evidence H could be obtained either from the Ministry of Foreign Affairs of the United Republic of Tanzania, or from the country which was seeking extradition of the Respondent. The significance of this unauthenticated document becomes apparent, when it is noted, that it I makes reference to earlier diplomatic exchanges between the two countries, concerning the establishment of extradition arrangements,

and that, this alleged exchange of diplomatic notes occurred after the expiry of the A period of two years stipulated under what has come to be known by some international jurists as the Nyerere Doctrine State Succession, but before the enactment of the Extradition Act, 1965. We are satisfied that a reasonable tribunal of inquiry, having been put on notice about the above mentioned diplomatic exchange of notes, would not B conclude, without sufficient inquiry about the matter, that no legally binding extradition arrangements exist between the United Republic of Tanzania and the Federal Republic of Germany. This means that the learned Resident Magistrate did not fully discharge his duties according to law when hearing the preliminary objection raised by the Advocates C for the Respondent. We shall therefore have to interfere with the findings of the two courts below.

Before we do so however, we feel that we shall be failing in our duties if we do not express our dissatisfaction with the manner in which the prosecution handled these D proceedings. The prosecution lacked seriousness and purpose. This attitude is aggravated by the fact that only one state attorney appeared to argue the appeal against two defence counsels before us. Two state attorneys appeared in the court of first E instance, that is, Mr Shio and Miss Philip, and three state attorneys appeared in the High Court on appeal, that is Mr Shio, Miss Philip and Mr Mwanyika. We do not know whether the reasons for failure to have more than one state attorney appeal before us was due to shortage of experienced state attorneys in the Attorney General's Chambers. Whatever be the case, we do not think that it would have been impossible to find at least F one state attorney to join Mr Shio to assist this court reach a just decision. We would wish the Attorney General to take note of these expressions of our disapproval of the conduct on the prosecution side, and to ensure better performance in future in the G interests of justice and our nation.

In the final analysis, we allow the appeal, quash the findings of the two courts below, and direct that the Resident Magistrate continues to hear the preliminary objection in the light of the new evidence and any other relevant matters, and depending on the outcome of H the preliminary hearing, to conclude the proceedings according to law. We further order that the Respondent, Peter Roland Vogel, be apprehended forthwith, and he brought before the Resident Magistrate for purposes of this inquiry. I

Appeal allowed.

1987 TLR p107

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[zRPz]JOSEPH CHALEANI v REPUBLIC 1987 TLR 107 (HC)

Court High Court of Tanzania - Mbeya
Judge Mroso J

30 September, 1987
Flynote

Criminal Practice and Procedure - Pleas - Plea of guilty not consistent with facts narrated B by prosecution - Whether plea of not guilty ought to be entered.
Criminal Practice and Procedure - Compensation order - Primary Court's power to order compensation - Magistrates Courts Act, 1984 - Third Schedule - Primary Court Criminal C Procedure Code.
-Headnote
The appellant pleaded guilty in the Chimala Primary Court for the offence of wilfully and D unlawfully destroying crops in a maize shamba and was sentenced to a fine of Shs. 10,000/= or six months imprisonment and ordered to pay 140 bags of maize or their monetary equivalent as compensation to the complainant. The appellant argued that his plea was equivocal because it was not consistent with facts as narrated by the E prosecutor and therefore a plea of not guilty ought to have been entered against him.
Held: (i) Appellant's plea of guilty was unequivocal because he understood well and accepted as correct the incriminating facts as narrated by the complainant; F

(ii) the Primary Court's powers as spelt out in paragraph 5(i)(b) of the Primary Court Criminal Procedure Code, Third schedule to the Magistrates' Courts Act, 1984 is, except in a case under the Minimum Sentences Act, to order compensation to the extent of shs. 1,000/= only. G
Case Information
Appeal dismissed.
No case referred to.
Ndunguru, for the Republic H
[zJDz]Judgment
Mroso, J.: The appellant was prosecuted in and convicted by the Primary Court of Chimala for the offence of wilfully and unlawfully destroying crops in a maize shamba, contrary to section 326 (1) of the Penal Code. He was sentenced to a fine of shillings I 10,000/= or six months imprisonment. The conviction followed
1987 TLR p108
MROSO J
from a plea of guilty by the accused person. He was also ordered to pay 140 bags of A maize or their equivalent monetary value as compensation to the complainant.
Although the appellant had been convicted on his own plea of guilty, he appealed to the District Court of Mbeya against both conviction, sentence, the compensation order and B an order to pay costs. The District Court dismissed the appeal except for the order for costs which was set aside. The appellant has now resorted to this court on a second appeal.
Both before the first appellate court and before this court the appellant, through his advocate, has argued that his plea of guilty was equivocal because it was not consistent C with the facts which were narrated by the prosecutor and that although the appellant admitted those facts to be correct, a plea of not guilty ought to have been entered against him.
To appreciate the import of this argument it may be necessary to quote at some length D from the Primary Court record.
The charge read as follows:

LKOSA:KUHARIBU MALI K/F 326(1) SURA 16 K.A. HABARI ZA KOSA: Mnamo tarehe 28/4/87 E saa 4.00 asubuhi katika kijiji cha Mabadaga Wilaya na Mkoa wa Mbeya, Nyerera Mainge unashitakiwa kuwa uliswagia ng'ombe zako kwenye shamba la mlalamikaji na kusababisha kuharibu mahindi yote yaliyokuwa humo shambani bila ya halali. F

To this charge the appellant replied "Ni kweli". The court recorded "Anakiri", meaning he admits the charge.

The complainant was asked (by the court) to narrate facts in support of the charge and he said as under:- G

Mnamo tarehe 28/4/87 saa 4.00 asubuhi mshitakiwa kwa makusudi aliswaga ng'ombe wake shambani, ambako kulikuwa na mahindi na ng'ombe wake wapatao 200 waliharibu mahindi yote kwenye shamba la ukubwa wa ekari saba, nilifika shambani na kukuta ng'ombe wa H mshitakiwa wamo shambani wakiwa hawana mchungaji na shamba lote limeharibiwa na kusababisha hasara ya gunia 140. Hivyo niliwakamata hao ng'ombe ndipo mshitakiwa akatokea akiwa amelewa. Tulimkamata na kumleta Mahakamani. I

1987 TLR p109

MROSO J

The court recorded immediately after those facts were narrated that the accused A admitted the facts to be true. The court proceeded to convict the appellant on his own plea of guilty. When the court asked the appellant to state mitigating factors, if any, he is recorded as having said: B

Sina la kueleza lingine ila naomba kumlipa mwenzangu.

It is being argued for the appellant that since the complainant said the appellant was not present at the shamba when he (complainant) found the cattle grazing on his maize crop C and that as there was no mention of anyone who saw the appellant driving his cattle into the shamba, it could not be said with assurance that the appellant wilfully and unlawfully drove his cattle to the maize crop, to destroy it.

Learned State Attorney for the respondent Republic counter - argued that although it is D true it was not mentioned in the facts who had seen the appellant drive his cattle into the shamba and that he was not found in the shamba with his cattle and he only came later in a drunken state, yet the appellant accepted as correct the allegation against him in court that he had deliberately driven his 200 odd head of cattle into the complaint's E maize shamba. The learned State Attorney further said that the fact that the complainant did not see the appellant around when he discovered the large head of cattle in his shamba or that the appellant later appeared in a drunken condition does not negate the fact that he deliberately sent his cattle into the shamba. It is quite conceivable that the F appellant drove his cattle into the maize shamba and thereafter went away to drink his head off.

I find the State Attorney's argument quite tenable. It is thought that the appellant's cattle strayed into the complainant's shamba and, without his (appellant's) knowledge, G destroyed the maize crop, the appellant should have disputed the incriminating facts which the complainant narrated against him. On the other hand, it is reasonable to infer that the appellant well understood the damning allegations against him and knowingly accepted them as correct because such as inference would be quite consistent with the H eventual undertaking by him to

compensate the complainant for the loss he had suffered. I, like the two lower courts, find that the appellant's plea of guilty was not at all equivocal but clearly unequivocal. I dismiss that ground of appeal.

I take it, too, that the appellant knowingly accepted as correct the complainant's claim I that his maize shamba was seven acres in

1987 TLR p110

MROSO J

size and that he had suffered an anticipated harvest of 140 bags of maize. Therefore, the A appellant cannot now be heard to complain that he had suffered injustice in not being present when assessment of damage caused to the complainant was being made.

Notwithstanding what I have just said above however, the trial court was not competent to order the appellant to pay back 140 bags of maize or the monetary equivalent of them B to the complainant.

The powers of Primary Court to order compensation are spelt out in paragraph 5 of the Primary Court Criminal Procedure Code, the Third Schedule of the Magistrates' Court Act, 1984. Paragraph 5 (1) (b) of the Code provides that except in a case under the C Minimum Sentences Act which a Primary Court is empowered to try, it can order compensation to the extent of shillings one thousand only.

It is quite pertinent that 140 bags of maize would cost not less that shillings 100,000/=, well above the jurisdiction of a Primary Court to order as compensation. I must, D therefore, quash the compensation order and substitute thereof compensation in the sum of shillings 1,000/= only. If the complainant feels he is entitled to a more substantial sum as compensation, he should file a civil suit against him in a court of competent jurisdiction. E

As for the sentence of a fine of shillings 10,000/= or six months imprisonment in default, the trial Primary Court had jurisdiction to impose and although the fine of 10,000/= was the maximum that court had power to impose, the appellant could hardly legitimately complain against its severity. His illegal act was grossly reckless and irresponsible and I F am not about to fault the lower courts.

For the foregoing reasons, the appeal is allowed only to extent indicated, otherwise it is dismissed.

G Order accordingly.

1987 TLR p111

A

[zRPz]SALUM MATEYO v MOHAMED MATEYO 1987 TLR 111 (HC)

Court High Court of Tanzania - Mbeya
Judge Mroso J

2 October, 1987
Flynote

Land Law - Land Registration Ordinance Cap. 334 - Definition of owner of an estate or B interest thereof - S. 2 of Cap. 334

Land Law - Unconditional gift - A sui juris out of love and affection - Whether it passes property absolutely.

-Headnote

The District Court of Mbeya, after considering evidence and the law, decreed that a C house, the subject matter of the suit, belonged to the respondent who had paid the purchase money and receives rent from the tenants who recognize him as their landlord. The appellant, under whose name the house and the right of occupancy was transferred D and registered, was aggrieved by that decision and appealed.

Held: (i) Section 2 of the Land Registration Ordinance Cap. 334 defines owner in relation to any estate or interest as the person for the time being in whose name the estate or interest is registered; E

(ii) an unqualified gift sui juris out of love and affection passes property absolutely.

Case Information

Appeal allowed. F

No case referred to.

Mwaikusa, for appellant.

[zJDz]Judgment

Mroso, J.: On 26th February, 1981 the respondent Mohamed Mateyo obtained a G decree in the District Court of Mbeya for a declaration that a house on Plot 22, Block 46 with Title number 12179 in the Mbeya Municipality belonged to him. The appellant felt aggrieved by that decree and appealed to this court. The appeal itself has had a H chequered history but I shall not go into that. Suffice it to point out that it was not until last week, the seventh year after it was filed, that it was heard.

Before the trial court it was not disputed that the house which was the subject matter of I the suit was registered in the name of the appellant. Originally the plot on which the house stands belonged to one Hilmar Kyumana. He had a Certificate of Occupancy. On

1987 TLR p112

MROSO J

30th May, 1975 the Right of Occupancy was transferred to the appellant, in his name, in A consideration of shilling twelve thousand which was paid as purchase price of the house in the plot. The transfer was subsequently duly registered.

It was a matter for dispute, however, on who paid the purchase money. The appellant said he did it out of his own savings. The respondent on the other hand said he had paid B it out of love and affection for his brother, the appellant. The trial court was of the view that it was paid by the respondent.

There was a second issue on who received the rent from the tenants. Evidence was given by two witnesses who were tenants during the period between 5th May, 1975 and C 30th June, 1978. One of the witnesses said he paid rent to both the respondent and to the appellant, but at different times. The other one said he paid rent to the respondent only and that he recognized

him as his landlord. The appellant in his evidence said he had authorized the respondent to collect rent on his behalf because he, the appellant, D was too busy working in an hotel of the respondent.

The trial court considered the evidence and the law and held that although the Certificate of Occupancy was in the name of the appellant the suit premises belonged to the E respondent mainly because it believed the purchase money had been paid by the respondent who also collected rent from tenants in the house and those tenants recognized him as their landlord. The crucial question in this appeal is whether the trial court had directed itself properly on the facts and on the law. F

On the evidence I think it was open for the trial court to hold both that the money for the purchase of the suit premises was paid by the respondent and that for most of the time between May, 1975 and 30th June, 1978 the respondent received the house rent and was considered by the tenants to be the landlord. But considering that the legal title to G the premises was in the name of the appellant could the trial court properly proceed to declare the suit premises the property of the respondent?

It seems to me clear that in law, the appellant in whose name the suit premises were registered was the owner. I am fortified in this view by Section 2 of the Land H Registration Ordinance, Cap. 334 which defines "Owner" in relation to any estate or interest as the person for the time being in whose name the estate or interest is registered. The appellant remained the unchallenged owner of the premises until July 1978 when the respondent purported to terminate the appellant's ownership, apparently I because of a misunderstanding

between them resulting in the extinction of their mutual love and affection. A

It would appear from the facts of the case as given to the trial court as accepted by that court that the appellant had acquired title to the house by way of a gift inter vivos. Was B it open for the respondent to revoke the gift when their personal relationships charged?

Counsel for the appellant has submitted that the gift had been given unconditionally and was therefore absolute and irrevocable. He did not cite any authority for that proposition. The respondent has said before me that he had attached a condition to the C gift. He said he had told the appellant that he would hold the property in trust for his (respondent's) daughter who was then a minor. This is novel and appears to be an afterthought. The respondent never mentioned any such thing before the trial court and I do not believe he would have forgotten to mention it had it been the true position. Now, D back to the question whether the gift was absolute and irrevocable.

In the first place, the respondent as sui juris was competent to give the suit premises to the appellant as soon as he bought it by allowing him to take possession of the E Certificate of Occupancy and to register himself as the owner of the right of occupancy. It is stated on page 366 of Volume 18 of Halsbury's Laws of England, 3rd Edition, that "It is on legal and aquitable principles clear that a person sui juris acting freely, and with sufficient knowledge, ought to have and has power to make, in binding and effectual F manner, a voluntary gift of any part of his

property, whether capable or incapable of manual delivery, whether in possession or reversion, and howsoever circumstances"

There is no evidence that at the time the respondent paid the purchase money for the suit G premises and allowed the appellant to be registered as the owner thereof and to take possession of the certificate of occupancy he attached any conditions, precedent or subsequent, to the gift. So, in the absence of evidence to the effect that the respondent had reserved a power of revocation, and as there is no claim that the gift was induced by H fraud, undue influence, mistake or misrepresentation, of was tainted with illegality, I am constrained to hold that the gift was absolute and irrevocable.

The trial magistrate held that because there was evidence showing that the respondent was receiving rent and was considered by the tenants as the landlord, that, in effect, I annulled the appellant's legal title to the suit premises. No authority was cited for such a

view and I, on my part, cannot think of any. It seems to me plain however that mere A receipt of rent from tenants cannot be sufficient in fact or in law to make the receiver, ipso facto, the owner of premises. It needs no great talent to know that owners of premises quite often do appoint agents to collect rent from tenants on their behalf. The tenants or their part may mistakenly take the agents for the landlord or, more precisely, B the owner of the premises.

Although the respondent has my sympathies in the sense that on the facts and the law of the case he is unable to take back the valuable gift which he had given to the appellant during their happier days, I have to allow this appeal by quashing the judgment of the C trial court and set aside the decree thereof. The appellant remains the owner of the suit premises and shall he entitled to costs of this court and of the court below. The costs to be taxed.

D Appeal allowed.

E

[zRPz]JUMA JOSEPH SILIMU, DANIEL JOSEPH SILIMU and ONESMO JOSEPH SILIMU v REPUBLIC 1987 TLR 114 (HC)

Court High Court of Tanzania - Mbeya
Judge Mroso J

12 October, 1987 F

Flynote

Criminal Practice and Procedure - Bail - Application to the High Court after District Court refused to grant it - Whether procedure proper.

-Headnote

The appellants applied to the High Court for bail after several unsuccessful attempts G therefor to the District Court of Mbeya before which they were facing a joint charge of injuring animals

c/s 325 of the Penal Code. The application was made under s. 149 of the Criminal Procedure Act. H

Held: Where an application for bail is refused by a subordinate court, the applicant may appeal against the refusal order to the High Court, and it is improper for the applicant to move the High Court by way of a fresh application.

Case Information

Application dismissed. I

1987 TLR p115

MROSO J

No case referred to. A

Bateyunga for the applicants.

[zJDz]Judgment

Mroso, J.: The applicants, through their advocates M/S Bateyunga and Co., have B applied to this court for bail after several unsuccessful attempts which they made to the District Court of Mbeya before which they are facing a joint charge of injuring animals, contrary to section 325 of the Penal Code, Cap. 16 of the Laws. The application was made under section 149 of the Criminal Procedure Act, 1985. C

Learned State Attorney for the Respondent Republic has submitted that although on the merits, he would not have objected to bail, the applicants should have appealed the lower court order refusing bail and not make an application to the High Court. He did D not cite authority for that submission. Counsel for the applicants countered by saying that the usual procedure has always been that if the District Court makes a bail order adverse to an applicant, the applicant files an application, and not an appeal, to the High Court for bail or for better bail terms. E

Learned counsel for the applicants is right as to what the Procedure under the repealed Criminal Procedure Code, Cap. 20 used to be. But it is still the procedure under the Criminal Procedure Act, 1985?

Under the Criminal Procedure Code bail was grantable or refused by a subordinate F District Court under Section 123(1) of the Code and subsection (3) of Section 123 provided as follows:

(3) Notwithstanding anything contained in subsection (1) of this section the High Court may in any case direct that any person be admitted to bail or that the bail required by a subordinate G Court or a police officer be reduced.

The High Court took cognizance of the matter through an application made to it.

The provisions for bail under the Criminal Procedure Act, 1985 are to be found in H section 148. And then there is section 149 which, for ease of reference, I shall quote in full. It runs as follows:-

149. Where in connection with any Criminal proceedings a subordinate court has power to I admit any person to bail, but either refuses to do so, or does or offers to do so on terms

1987 TLR p116

MROSO J

unacceptable to him the High Court may admit him or direct his admission to bail or, where he A has been admitted to bail, may vary any conditions on which he was so admitted or reduce the amount in which he or any surety is bound to discharge any of the sureties (sic). B

The question of moment which is now relevant is, how does the matter get to the High Court? I think the answer lies in section 161 of the Criminal Procedure Act, 1985 which, again for ease of reference, I shall quote in full. It is in the following words: C

161. All orders passed under section 148 to 160 by any magistrate shall be appealable to and may be reviewed by the High Court.

Now, there was no such provision under the repealed Criminal Procedure Code. One D would not be misled by section 132 of the Code which read as follows:-

132. All orders passed under last preceding section by any magistrate shall be appealable to E and may be revised by the High Court. (My emphasis).

There it was only an order of forfeiture of recognizance (section 131) which was appealable or revisable, whereas under Section 161 of the Criminal Procedure Act all orders of a subordinate court relating to bail, sureties, and forfeiture of recognizances F included, are appealable to and revisable by the High Court.

From the foregoing discussion it is clear, I hope, that there is a sharp departure in procedure in the Criminal Procedure Act, 1985 from that in the repealed Criminal Procedure Code, Cap. 20. I have to rule, therefore, that the parallel application for bail G to this court after those which were made to the District Court and refused, is misconception of the law and must be dismissed. The applicants may, if they deem it necessary, appeal against the lower court order to this court and the door will be open to them. H

Application dismissed.

1987 TLR p117

A

[zRPz]SAID HEMED v REPUBLIC 1987 TLR 117 (CA)

Court Court of Appeal of Tanzania - Tanga

Judge Mfalila Ag JA, Mapigano Ag JA and Omar JJA

12 October, 1987 B

Flynote

Criminal Law - Murder - Defence of provocation - Killing in the heat of passion.

Criminal Law - Murder - Accused intended to harm another but harms a third person - Third person dies.

Evidence - Child of tender years - Whether evidence admissible. C

Evidence - Standard of proof in criminal cases.

-Headnote

The appellant was convicted by the High Court of murder and sentenced to death. It was not in dispute that the appellant intending to harm an adulterer killed the deceased D who was his

own wife. He admitted from the beginning that he wounded the deceased byinflicting a panga blow on her face. The deceased subsequently contracted tetanus and consequently died. It was also proved that the assault was preceded by a matrimonial squabble between the appellant and the deceased and further that at the time E of the incident the appellant and deceased who were originally wife and husband, were living separately. On the fateful night, the appellant contended, the deceased was surprised committing adultery with another man, her former husband and alleged that the F killing was prompted by provocation. This plea was refused by the trial court hence the present appeal.

Held: (i) Where a killing is done in the heat of passion, the defence of provocation applies and the killing is not murder, but manslaughter; G

(ii) if a person feloniously assaults another in such circumstances as would make the killing of that other person manslaughter, by accident hits and kills a third person whom he never intended to hit at all, he is guilty of manslaughter;

(iii) as a matter of prudence, the evidence of a child of tender years requires H corroboration before it can be acted upon;

(iv) in criminal cases the standard of proof is beyond reasonable doubt. Where the onus shifts to the accused it is on a balance or probabilities. I

1987 TLR p110

MAPIGANO Ag JJA, MFALILA Ag JJA AND OMAR JA

Case Information

Appeal allowed. A

Case referred to.

1. R. v Magambo Kwenyema [1934] 1 EACA 169.

[zJDz]Judgment

Mapigano and Mfalila, Ag. JJ.A. and Omar, J.A.: The appellant Said Hemedi was B convicted of the murder of his wife, one Esta d/o Rajabu, with whom he had begotten one child. The learned trial judge, Sisya, J., sentenced him to death. He has come to this Court in a bid to have the conviction altered to one of manslaughter. C

Throughout there was no dispute that the said Esta died at the hand of the appellant. The appellant admitted from the very beginning that he dealt her a panga blow on the face and wounded her, the incident taking place at Mtunda in the Korogwe District on Saturday 18/12/82. It appears that his assault was preceded by a matrimonial squabble D between the appellant and the deceased and that it took place when the two were living in separation. It was not in dispute that the deceased subsequently contracted tetanus and consequently died in the hospital on 31/1/83. The appellant denied, however, that he killed her of malice aforethought. He set up a plea of provocation, E contending that he had surprised the deceased committing adultery with P.W.3 Zahoro Buge who was formerly her husband and that the killing was done in the resultant heat of passion. What fell for consideration and determination, therefore, was whether the killing constituted murder or manslaughter. F

The prosecution produced P.W.1 Sylivester Rajabu the younger brother of the deceased. He was the principal witness for the Republic. He was a child of tender years. In the learned judge's

estimation his age, at the time he appeared in the witness box in august, 1986, was between 9 and 10 years. If we go by that estimation, then the G witness was aged between 5 and 6 years at the time the killing took place. He gave unsworn evidence, the judge having got the impression, upon a voir dire, that he was sufficiently intelligent to justify the reception of his evidence, though he did not understand the nature of oath. H

According to P.W.1, the assault took place near a latrine at 8.30 p.m. at the home of his parents where the deceased was then staying. P.W.1 was then answering a call of nature inside the latrine. He had asked the deceased to escort him to the latrine and she was standing outside the latrine waiting for him when she was set upon. The deceased I cried saying "Father, I am dying" and then ran to the

second house of P.W.2 Julius Nyangasa, her paternal uncle, leaving P.W.1 behind. As A it happened, P.W.1 did not see the assailant. But he denied that P.W.3 Zahoro was around, which, as we shall see presently, tended to support P.W.3's denial that the appellant found him with the deceased in flagrante sexual delicto.

P.W.2 Julius confirmed that the deceased came to his house crying and bleeding from a B fresh facial wound. In reply to his question the deceased stated that she had been attacked by her husband at the latrine. He said he did not ask her why the appellant had done so. Hours later when the appellant was brought before the elders of the village he, C the appellant, alleged that he surprised the deceased committing adultery with P.W.3 Zahoro. P.W.3 who was also present vehemently denied that allegation, saying that at the material time he was at a disco dance somewhere else.

In his testimony P.W.3 stuck to that denial. He said that since her marriage to the D appellant he had stopped talking to her. He went on to say that was not the first time for the appellant to make such a serious allegation against him. Previously, he said, the appellant had accused him of seducing the former wife, one Jane. According to him, the appellant failed to substantiate that charge when the matter was taken to the village elders. E

The appellant gave evidence in his defence. He maintained that he surprised P.W.3 and the deceased lying on the ground committing adultery, P.W.3 on top. He said the two had not completely undressed but had only pulled up or down their clothes. He was F carrying a panga and he raised it and threw it to P.W.3. He said that this time around he wanted to leave P.W.3 with a mark, because on the previous occasion, when he surprised him committing adultery with Jane, P.W.3 had subsequently denied having done so, putting forth the question why the appellant had not left him with a mark. According to the appellant, the panga missed P.W.3 and landed on the deceased G instead.

That was the substance of the evidence that was presented before the High Court in this case. After the two counsel had addressed the court and the judge had summed up the case to the three assessors the assessors stated the following opinions. The first H assessor, who seemed to have accepted the version of the appellant, found that the appellant had killed his wife accidentally. The second assessor was of the opinion that the evidence in regard to the adultery

was not strong. He added that "even if there was I adultery the accused killed deliberately". He advised that the appellant should be convicted of murder. He is entitled to that
1987 TLR p120
MAPIGANO Ag JJA, MFALILA Ag JJA AND OMAR JA
opinion. We wonder, though, whether he fully apprehended that the standard of proof A applicable in a criminal case of this nature is one beyond all reasonable doubt and that where the evidence burden shifts onto the accused it is sufficiently discharged by the accused by merely adducing evidence that casts a reasonable doubt in the prosecution case; and we are not sure that he understood that in this particular case, where the B appellant had put up a plea of provocation, the onus upon him was no more than to create in the mind of the court a reasonable doubt as to the truth of his story. The third assessor disbelieved the appellant's account and believed the testimony of P.W.3 that he was not present at the scene of the assault. C
In his judgement the learned judge agreed with the observation of the two assessors that the appellant must have been tracking the deceased with what he described as a "homicidal frenzy". He found that the appellant did "quietly" cut the deceased with a panga and then disappeared from the scene, again "quietly". He associated himself with D the view expressed by the third assessor and accepted the evidence given by P.W.3. He took the view that the evidence adduced by P.W.1 and P.W.2 afforded corroboration of P.W.3's alibi. He addressed his mind to the issue of mens rea and found that the appellant assaulted the deceased with the intention of doing her a serious E bodily harm at the very least.
The substantive part of the appeal is against the learned judge's finding in regard to the intelligence of P.W.1. Counsel for the appellant Mr Kavuta has addressed us at some length on this point and referred us to the relevant materials on the record. He has F invited us to find that this child was not intelligent enough and to question his recollection of the event seriously.
In our considered opinion Mr Kavuta's contention about P.W.1's intelligence is not without some basis. In actual fact that contention squares with our own analysis and assessment. As observed above, P.W.1 was aged between 5 and 6 years at the time of G the killing. He came to give evidence in the High Court four years after the event when he had attained the age of 9 or 10 years. He was then schooling in Std. III. But this is the child who told the court that he did not know the names of his parents, and H that he was not aware of the fact that his sister Esta has died. We are amazed in our judgement we are not satisfied that P.W.1 was possessed of sufficient intelligence. We therefore entertain serious misgivings about his recollection of the event.
We are fully apprehensive of the fact that we are sitting on appeal and that we have not I had the opportunity of seeing or hearing
1987 TLR p121
MAPIGANO Ag JJA, MFALILA Ag JJA AND OMAR JA
the witness. But on the materials on record we strongly feel that the finding of the A learned judge in respect of P.W.1's intelligence was not reasonably open to him and we are, therefore,

obliged to disturb it. We take the view that as a matter of prudence the evidence of P.W.1 required corroboration before it could be acted upon.

The question that arises then is whether the testimony of P.W.2 and P.W.3 afforded B corroboration of the evidence of P.W.1 Mr Mwale, learned State Attorney, appeared to think so. Like Mr Kavuta and Miss Mandari who appeared for the appellant at the trial we respectfully think not. We hardly find any corroboration in the evidence of P.W.2. C The material part of the evidence of P.W.2 wholly related to what took place elsewhere after the event. As shown, P.W.2 was not at the scene at the time of the assault. He could not have honestly sworn that the deceased and P.W.3 were not taken in the act of adultery. In this connection we have to point out that there is no evidential basis for the D learned judge's finding at page 51 that the alibi put forward by P.W.3 was supported in material particular by the evidence of P.W.2.

If we believed the alibi of P.W.3 can sufficiently afford corroboration of the evidence of P.W.1. It has been submitted, however, that P.W.3 was a witness who had his own E interest to serve and that it was unsafe to act on his evidence. We agree. It is possibly true that P.W.3 had been intruding into the appellant's matrimony. In sum we think that the defence of provocation should have availed the appellant. Of course the possibility F that the appellant intended to hit P.W.3 does not detract from that defence. As was restated in R. v Mgambo Kwenyema, (1934) 1 E.A.C.A. 169, if a person feloniously assaults another in such circumstances as would make the killing of that other person manslaughter, by accident hits and kills a third person whom he never intended to hit at G all, he is guilty of manslaughter.

Aside from that we think that malice aforethought was not sufficiently established. We are rather surprised that neither Mr Kavuta in this Court nor Miss Mandari in the High Court did touch on this point, but as we have pointed out, the learned judge adverted to H it in his judgment and found that the appellant intended to injure the deceased seriously. We get the impression that the learned judge did not examine the materials on record critically. It seems to us that the relevant materials evidence contained in the post-mortem report was of minimal help. There is hardly any way one can tell with I certitude how heavy was the single blow and how serious was the wound that was occasioned. As shown, the deceased died in

the hospital on 31/1/83, that is 49 days after as the result of tetanus that had set in the A wound in the meantime. We are of the view, therefore, that in any event the killing only constituted manslaughter and not murder.

We allow the appeal, set aside the conviction of murder and substitute one of manslaughter therefor. We sentence the appellant to imprisonment for a term of five B years effective from the date of the conviction in the High Court.

C Appeal allowed.

D

[zRPz]EDWARD DICK MWAKAMELA v REPUBLIC 1987 TLR 122 (HC)

Court High Court of Tanzania - Mbeya

Judge Mroso J

14 October, 1987

Flynote

Criminal Practice and Procedure - Trial - Trial by two magistrates in succession - Succeeding magistrate prefers to rely on the version of evidence given by witnesses before E the first magistrate - S. 214(2)(a) C.P.A..

Evidence - Standard of proof.

Evidence - Secondary evidence - Whether admissible. F

-Headnote

The appellant was charged in the District Court of Iringa with a total of twenty five counts. Ten were contrary to 317 (c) of the Penal Code, eleven contrary to sections 265 and 270 of the Penal Code and the remaining four contrary to sections 333, 335(c) and 337 of the Penal Code. The case was tried by two magistrates in succession. The G succeeding magistrate properly informed the appellant of his right under section 214 of the Criminal Procedure Act, 1985 who opted to have two witnesses summoned. However, in writing his judgement, the succeeding magistrate decided to rely more of the evidence before the first magistrate and convicted the appellant on twenty of the twenty H five counts, hence the present appeal.

Held: (i) The second magistrate, acted in error and made nonsense of the legislature's intention in enacting s.214 (2)(a) of the Criminal Procedure Act 1985. The purpose of I the section is to entrench the

1987 TLR p123

MROSO J

right of an accused, where he so chooses, have the magistrate who judges him to hear all A the witnesses of a particular witness who gives evidence which involves him (accused);

(ii) where an accused is charged of stealing money, he can only be convicted upon proof beyond reasonable doubt;

B (iii) for secondary evidence to be admissible, it must satisfy the provisions of section 67 of the Evidence Act 1967 on the admissibility of secondary evidence.

Case Information

Appeal partly allowed.

No cases referred to. C

[zJDz]Judgment

Mroso, J.: The appellant was charged in the District Court of Iringa with a total of twenty five counts. Ten of them were on fraudulent false accounting, contrary to section D 317 (c) of the Penal Code, eleven counts were on stealing by Public Servant, contrary to sections 265 and 270 of the Penal Code and the remaining four counts were on forgery, contrary to sections 333, 335 (c) and 337 of the Penal Code. Although he disputed all the counts the trial District Court found him guilty on nine counts of E fraudulent false accounting, for which he was sentenced to two years imprisonment on each count; on ten counts of theft by public servant he was sentenced,

on some, to six years imprisonment on each count and, on others, to four years imprisonment on each count. On the forgery counts he was found guilty and convicted on three counts and F was sentenced to two years imprisonment on each count. The sentences were ordered to run concurrently. He left dissatisfied with the convictions and sentences, hence his appeal to this court.

During the period between July, 1982 and August, 1983 the appellant worked as an G accounts assistant in the office of the Officer Commanding District, Iringa (O.C.D) and had two accounts clerks working under him. among his duties, he collected government revenue, issued Exchequer Receipts to those making payments to him and eventually banked the collections. It would appear (as no direct evidence was given) that before H taking collections to the bank he had first enter the total amount into a Bank Pay-in-slip, also known as a letter transfer. It would also appear (again, because no evidence on procedure to be followed was given at the trial) that serial numbers of Exchequer Receipt which had been issued when collections were being made were quoted on the I Pay-in-slips. It

may also be inferred from the recorded evidence that the Pay-in-slips were prepared in A several copies.

It was alleged before the trial court that the appellant wrote on the Pay-in-Slips amounts which were less than the actual collections which related to the Exchequer receipt that were quoted on the relevant Pay-in-Slips. It was further impliedly alleged that the B appellant banked only the amounts shown on the pay-in-slips and misappropriated the difference in the collections.

On the whole the case was prosecuted in an unsatisfactory manner and the evidence as well as the judgement were generally not as good as they should have been. As it is C already apparent, certain important evidence was not given but was merely assumed. For example, no evidence was led regarding what ought to have been the proper procedure to be followed by the appellant in taking custody of various accounts books, in receipting payments; or in what other books or documents revenue so received was to D be entered; the procedure leading to banking of revenue; if there was any practice of bank reconciliation, et cetera, et cetera. No bank employees gave evidence on the value or importance of Pay-in-slips, whether the amounts shown on the face of the originals of the pay in slips were actually received by the bank, what could be the explanation for the E difference in the amounts shown on the originals of the pay-in-slips and those shown on the copies thereof, all of which were rubber-stamped by bank staff. Also, although the appellant is said to have stolen a large part of the revenue he used to collect, no Bank statements for the relevant period were produced in evidence to show the actual F amounts which were credited on the days the appellant banked revenue collections.

The case was tried by two magistrates in succession. The first trial magistrate was apparently transferred from Iringa District Court before completing the trial. The G succeeding magistrate properly informed the appellant of his rights under Section 214 of the Criminal Procedure Act, 1985. The appellant requested that two witnesses, namely PW2 and PW4 be recalled go give evidence afresh because, as he later made it very clear, he wished the succeeding magistrate

himself to hear the evidence of those H witnesses, and not to act on their evidence which the first trial magistrate heard and recorded. The wish of the appellant, which was granted, was sanctioned by section 214 (2) (a) of the Criminal Procedure Act, 1985. Unfortunately, however, this second trial magistrate in his judgement also considered the evidence of PW2 and PW4 which his I predecessor had heard and recorded as well as

their evidence which he (the succeeding magistrate) heard and recorded. In some cases, A the magistrate preferred to believe the version of those witnesses' evidence which they had given to the first magistrate rather than the evidence they gave before him (the accused). Once the accused indicates his choice, the trial court is not entitled to circumvent it. B

In this judgement I shall not go into all the unsatisfactory features of the trial court judgement, which are not very few. However, I have carefully gone through all the evidence, including the exhibits which are produced at the trial. It is glaringly clear that the appellant committed some fraudulent false accounting offences and stole government C revenue. In his defence to the trial court he admitted that the originals of Pay-in-Slips which were tendered in evidence were written by him and bore his signature. He said the amounts of money shown on them were correct. That can only mean that those D were the amounts he took to the bank for banking. However, the total collections according to the Exchequer Receipts quoted on pay-in-slips, and the appellant gave no explanation at all for the discrepancies. The irresistible inference is that the accused stole the difference in those amounts of money.

The evidence to prove the offences of forgery was questionable. The documents alleged E to have been forged are triplicates of letter transfers (pay- in-slips). I have looked at those copies and they are all shown to have been overwritten with superimposed figures. There was no conclusive evidence that it was the appellant who did so. In effect, the F convictions on the forgery counts are quashed and sentences imposed in respect of them set aside.

Although the trial court convicted the appellant on count 18 relating to the theft of Shs. 9,795/=, there does not appear to be clear evidence to proved the charge. PW1 who G was giving evidence to prove the various counts told the trial court "I am confused on the 18th count. I request the court (sic) to continue with the 19th count". The witness did not again advert to that count so, the conviction on that count is unsupportable. It is quashed and the sentence of six years imposed for it is set aside. H

As for counts 22, 23 and 25, there was no firm evidence to prove them. The trial magistrate said of count 22 - "there was no evidence that this amount (of shillings 11,088/15) was banked". "The presumption is that the accused stole this money". But I the prosecution had to positively prove that the money was not banked or in any other way accounted for, and to convict on that kind of

presumption is a novel standard of proof. An accused person can only be convicted on A proof beyond a reasonable doubt. Convictions on counts 23 and 25 were partly based on secondary evidence (a) buff-copy of a pay-in-slip) which did not satisfy the provisions of section 67 of the

Evidence Act, 1967 on the admissibility of secondary evidence, and partly on omitted evidence. The trial magistrate excused the B non-adduction of necessary evidence by reasoning thus:

However, I am mindful, that the practice is to summon bank officials to testify on the banking of C the money in question. But, perhaps, this omission on the part of the Police Investigator or Public Prosecutor, is not fatal to this case.

With respect to the learned resident magistrate, that omission was fatal to the charges and the convictions, therefore, cannot be allowed to stand. They are quashed and the D sentences imposed in respect of them set aside.

In effect the appeal is dismissed on counts 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 15 and 16. The sentences imposed on those counts are not excessive and are upheld. The E appeal is allowed on counts 18, 22, 23, 24 and 25.

F Appeal partly allowed.

1987 TLR p126

G

[zRPz]DOTTO d/o RUBERA v CLEMENT s/o MHIGI 1987 TLR 126 (HC)

Court High Court of Tanzania - Mwanza

Judge Mwalusanya J

14 October, 1987 H

Flynote

Customary Law - Locus standi - Person not a party to a contract - Whether can bring proceedings under Sukuma law.

Customary Law - Sukuma custom - Whether proper for parent or near relative to claim back anything given to a child.

Criminal Practice and Procedure - Appellate jurisdiction - Section 9(3) of the Magistrates' I Court Act 1984 - Whether District Court can use the provision when exercising its appellant jurisdiction.

1987 TLR p127

MWALSUSANYA J

-Headnote

The appellant is the aunt of the respondent. Sometime back, about twenty years ago, A the respondent wanted to marry but did not have cattle to pay for the dowry. The respondent's mother asked her sister, the appellant for assistance to pay for her son's dowry. The appellant gave her sister, the respondent's mother thirteen head of cattle. B The respondent's mother in turn gave them to the respondent. The respondent subsequently started to quarrel with his mother and the appellant. The appellant successfully recovered from the respondent 13 head of cattle. In the District Court the magistrate relying on his own assessors reversed the decision of the Primary Court, hence the appeal to this court. C

Held: (i) It is common knowledge that under Sukuma customary law, on the facts as presented, the appellant was privy to the contract and had locus standi to prefer the suit;

(ii) under Sukuma customary law, it is proper for a parent or near relative to D claim back anything given to a child, who later delinquents against the donor provided that the delinquence in question is so grave as to justify the claim of refund from the delinquent child;

(iii) section 9(3) of the MCA 1984 which allows a district magistrate to invoke E the aid of assessors should only be invoked when the District Court hears a case in its original jurisdiction or when hearing an appeal in a case where the trial court omitted to consider a matter of customary law. F

Case Information

Appeal Allowed.

No case referred to.

[zJDz]Judgment

Mwalusanya, J.: The appellant in this appeal Dotto d/o Rubera successfully sued the G respondent Clement s/o Mhigi at Burizayombo Primary Court in a claim of refund of 13 heads of cattle under Sukuma customary law. The appellant is the aunt of the respondent in that the mother of the respondent one Kulwa d/o Rubera (PW.2) is a twin H sister of the appellant. The respondent is an illegitimate child of this Kulwa d/o Rubera.

Sometime back, about 20 years ago, the respondent wanted to marry, but he had no father to provide him with the dowry cattle. His mother Kulwa d/o Rubera (PW.2) went to ask her twin sister, the appellant, for some cattle on that she could give the same to I her son to marry. The appellant was kind enough, as she gave out 13

heads of cattle to Kulwa d/o Rubera who in turn gave them to the respondent for A marrying. The respondent duly got married and has children of his own.

Just recently it is said the respondent began to despise and quarrel with his mother and appellant. In other words he has decided to kill the goose that lays the golden egg. It is B said that he has completely cut off from his mother and appellant and that he provides them with no assistance despite their old age. When respondent had his three daughters married, he had no courtesy to inform his mother and the appellant. So the mother and the appellant are fending for themselves. Then there came a time when an insult was C added to an injury. It is said there was a piece of land which appellant and PW.2 had given to one of their sons for use, so that the crops from the shamba could help them. However respondent left his home in Sengerema District to go to claim that piece of land in Biharamulo District. He sued that boy in court, arguing that his mother and the D appellant had no title to pass to the son they had given him. We do not know who succeeded in that case, but that was the bitter pill that appellant and PW.2 could not swallow and the suit they filed.

There was the issue raised at the District Court, which was not dealt with by the trial E court, about the locus standi of the appellant who preferred the suit, as she was not the one who had personally handed over or given the cattle to the respondent. It was the respondent's mother

PW.2 who had handed over the cattle to the respondent. In my view the District Court was right that the appellant was privy to the contract under F Sukuma Customary law, even if she was not the one who had personally handed over the cattle to the respondent. In fact that was a non-issue at the trial, as it was common knowledge that under Sukuma customary law, on the facts as presented, the appellant was privy to the contract and had a locus standi to prefer the suit. We should always G be wary not to introduce any notions of foreign law in our customary law. However reprehensive the customary law may be, it is not for the courts to change it, but for the customary law community concerned to do it. Therefore the trial court was right to be H silent on this issue, as it was conceded that the appellant indeed had a locus standi.

Now let me go to the matter in controversy. It was conceded at the trial that under Sukuma Customary Law it is proper for a parent or near relative to claim back anything given to a child, who later 'sins' against the donor. However, it is stated that the 'sins' I must be grave enough for such a drastic step to be taken. The trial

magistrate together with the two assessors were of the unanimous view that the 'sins' A which were committed by the respondent were grave enough to justify the appellant to prefer the claim; and accordingly judgment was entered in favour of the appellant.

The respondent appealed to the District Court he was successful. The learned District B Magistrate called her own assessors who advised her that under Sukuma Customary Law only two 'sins' justified a parent to claim back what he donated to his son, and those were witchcraft directed at the donor and assaulting the donor. As the sins which the respondent had committed were not among those recognized ones, the District Court C held that the claim should fail.

In my considered view, the learned District Magistrate was wrong to enlist the help of assessors at the District Court under s.9(3) of the Magistrates' Court Act No. 2 of 1984. According to my understanding such provision should only be invoked when the D District Court hears a case in its original jurisdiction or when hearing an appeal in case where the trial court omitted to consider a matter of customary law. It will be appropriated that if a District Court calls its own set of assessors on a point which was decided by assessors at the trial court, there would be chaos, as has happened in this E case. So on that ground, my interpretation of the section in question, is to be preferred. The District Court should only have reviewed the decision of the trial court without enlisting the help of the assessors. So on that ground alone, the decision of the District Court must be faulted. F

And as a matter of principle I think the opinions of the assessors of the trial court are responsible and to be preferred. What the Sukuma customary law stipulates is that the 'sins' should be grave enough so as to justify claim of a refund from a delinquent child. G It would be anamolous if the sins recognized, were only witchcraft and assault of the donor, while such grave sins as committing adultery with the donor's wife or stealing huges sums of money or cattle from the

donor were omitted. That cannot be the Sukuma customary law for which much credit is given to the wisdom of the Sukuma ancestors. H
In the event this appeal is allowed. The decision of the District Court is set aside and that of the Primary Court is restored. Order accordingly.
I Appeal allowed.
1987 TLR p130
A
[zRPz]MARTIN s/o ERNEST v REPUBLIC 1987 TLR 130 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

15 October, 1987
Flynote
Criminal law - Being in possession of property suspected to have been stolen or B unlawfully obtained - Section 312(b) of the Penal Code Cap. 16 - Accused required to give reasonable explanation as to how he came by the property.
-Headnote
The appellant was charged and convicted of being in possession of property suspected C of having been stolen or unlawfully obtained. During a search which was for the purposes of finding a stolen firearm. in the accused's room under his bed, there was found a car windscreen and a fanbelt. At first the accused said that the property belonged to one Nassor who had not been able to produce receipts and had not come D back to collect them. At the trial the accused denied making such statement, and that the property was planted on him.
Held: Since the case depended on the appellant's credibility and since he had failed to E give a reasonable explanation as to how he came by the property found on him, the appellate court cannot fault the trial court's finding.
Case Information
Appeal dismissed. F
No case referred to.
[zJDz]Judgment
Mwalusanya, J.: The appellant in this appeal Martin s/o Ernest was charged and convicted of the offence of being in possession of property suspected to have been G stolen or unlawfully obtained c/o 312 (b) of the Penal Code Cap. 16. He was sentenced to two years imprisonment. He is now appealing against conviction and sentence.
It was not in dispute at the trial that the appellant was a police officer stationed at H Kwimba Township. There was a house which accommodated many other policemen including the appellant, but each had his own room. On 22/9/86 it was reported that a firearm was stolen from Kwimba Police Station and so a point was made of searching a room of each of the

policemen. At about 8.30 p.m. Insp. Bernard Maduhu (PW.1) I accompanied by other policemen
1987 TLR p131
like D/Copl. Kajoki (PW.2) and Sgt. John (PW.3) and P/C Boniphace (PW.4) A proceeded to search the rooms of the various policemen. In the accused's room under his bed there was found a car's windscreen and a fanbelt of a vehicle. When asked where he got those things, it is said the appellant explained that he had seized them from B a certain driver from Mwanza called Nassoro whom he suspected to have had stolen the same. He said that he asked the said Nassoro to produce the receipts so that the said items could be released. He said that up to that time, the said Nassoro had not returned. C
At the trial the appellant denied that the alleged items were found in his room nor that he had ever told his arresters that the items belonged to one Nassoro. He testified that the items were planted on him by the policemen who conducted the search.
However the trial court found the prosecution witnesses to be truthful witnesses and D hence the conviction. I have no ground to fault the trial court, as the case depended on the matter of the credibility of the witnesses for which the trial court was better situated to assess. The memorandum of appeal does not raise any point worthy of consideration. This was a clear case in which the appellant had failed to give a reasonable explanation E to how he came by the property found with him. The conviction was rightly registered.
As regards sentence, I find that it was reasonable and met the justice of the case. In the event the appeal is dismissed in its entirely. Order accordingly F
Appeal dismissed.
1987 TLR p131
G
[zRPz]ALI NYEMBWE v MWANAIDI RASHIDI 1987 TLR 131 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

16 October, 1987
Flynote
Civil procedure - Assessors - Primary Court Magistrate ignores unanimous decision of H assessors - Effect - S.7(2)Magistrates Courts Act, 1984.
-Headnote
The appellant had sued the appellant for recovery of a plot measuring two acres. After a I full trial, the presiding magistrate summed the case to the assessors who were unanimously of the view that the
1987 TLR p132
CHIPETA J

respondent had proved her claim. The trial magistrate dissented and gave judgement for A the appellant/defendant. The respondent appealed to the District Court which held that the magistrate had misdirected himself and that the error was incurable. The appellant was aggrieved and hence the appeal to this court. B

Held: (i) The Primary Court Magistrate had no authority to overrule the unanimous opinions of the assessors however perverse their opinions might have appeared to him;

(ii) the error was such a fundamental breach of mandatory statutory provisions as to be incurable. C

Case Information

Appeal dismissed.

No cases referred to. D

[zJDz]Judgment

Chipeta, J.: In Ujiji primary court, the present respondent, Mwanaidi d/o Rashid, sued the present appellant, Ally Nyembwe, for recovery of a plot measuring two acres.

After a full trial, the learned presiding primary court magistrate summed up the case to the gentlemen assessors. The two gentlemen assessors were unanimously of the view E that the respondent/plaintiff had proved her claim and gave their reasons for holding those opinions. The learned trial magistrate dissented and gave his reasons. The learned magistrate, however, continued: F

Kutokana na uwezo aliopewa Hakimu wa Mahakama ya Mwanzo na sheria, sio lazima afuate maoni ya washauri. Kwa hiyo Mahakama inaamua kuwa madai haya hayakuthibitika kwa sababu mdaiwa aliipata sehemu hiyo ki halali. Amri: Madai hayakuthibitika, mdaiwa G aendelee kulihudumia shamba lake kwa sababu alilipata kihalali".

The respondent then appealed to the District Court. The learned principal district magistrate of the first appellate court took the view that the learned primary court magistrate had grossly misdirected himself in that he acted contrary to express provisions H of section 7 (2) of the Magistrates' Court Act, 1984. In the opinion of the learned principal district magistrate, the error was incurable. He accordingly allow the appeal and ordered a retrial.

During the hearing of this appeal, Mr Kwikima, learned counsel for the appellant, I submitted that the first appellate court

could itself have re-assessed the evidence and decided the issues without ordering a A retrial.

Without labouring the point, I respectfully agree with the learned principal district magistrate that the learned primary court magistrate of the court of first instance clearly B acted contrary to express statutory provisions. Section 7 (2) of the Magistrate's Court Act, 1984 unambiguously states:

(2) All matters in the primary court including a finding of any issue, the question of adjourning a hearing, application for bail, a question of guilt or innocence of any accused person, the C determination of sentence, the assessment of any monetary award and all questions and issues what-soever shall, in the event of difference between a magistrate and the assessors or any

of them, be decided by votes of the majority of the magistrate and assessors present D and in the event of an equality of votes the magistrate shall have the casting vote in addition to his deliberative vote.

In the present case, the court was constituted by the primary court magistrate and two E gentlemen assessors. Since the two gentlemen assessors were unanimous in their finding, the learned primary court magistrate had no option but to draw up a judgement of the court containing the decision of the majority of the court and the reasons for the decision.

The learned primary court magistrate, therefore, had no authority to overrule the F unanimous opinions of the two gentlemen assessors however perverse their opinions might have appeared to him. The only option the learned magistrate had was to write his dissenting opinion.

The result in this case, then, is that there was, in effect, no judgement, and such "order" G as was purportedly made by the learned magistrate had no legal validity.

This error, in my view, and with deference to the learned principal district magistrate, was such a fundamental breach of mandatory statutory provisions as to be incurable. H

For the foregoing reasons, this appeal fails and is accordingly dismissed with costs in this court and the courts below. It is hereby directed that the suit be tried de novo by a court of competent jurisdiction constituted by a different magistrate and different panel of assessors. I

Appeal dismissed.

1987 TLR p134

A

[zRPz]MOSES CHARLES DEO v REPUBLIC 1987 TLR 134 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Omar JA, Mfalila Ag JJA and Mapigano Ag JJA

22nd October, 1987 B

Flynote

Evidence - Corroboration - Requirement of corroboration in sexual offences.

Evidence - Being in unlawful possession - Elements to be proved.

Criminal Practice and Procedure - Identification parade - Its purpose. C

-Headnote

The appellant with two other persons were charged with and convicted of robbery with violence, rape and being in unlawful possession of offensive weapons. On appeal to the High Court the conviction on rape was quashed because the trial court had convicted on D the basis of the uncorroborated evidence of the complainant. On further appeal to the Court of Appeal the appellant challenged the propriety of the identification parade and the basis of finding him guilty of unlawful possession of offensive weapons. E

Held: (i) In any sexual offence, if the person against whom the offence is alleged to have been committed be an adult, the court should warn itself that it is not safe to convict on the

uncorroborated evidence of the complainant but that if it is satisfied of the truth of the complainant's evidence, it may, after paying attention to the warning, nevertheless convict; F

(ii) an extra-judicial parade proceeding is not substantive evidence, it is only admitted for collateral purposes, in the majority of cases it serves to corroborate the dock identification of an accused by a witness in terms of section 166 of the Evidence Act, 1967; G

(iii) for a person to be found to have had possession, actual or constructive, of goods it must be proved either that he was aware of their presence and that he exercised control over them, or that the goods came, albeit in his absence, at his invitation and arrangement;

(iv) in the circumstances of this case the court was entitled to find that the H appellant was in possession of the pistol.

Case Information

Appeal dismissed. I

1987 TLR p135

MAPIGANO AG JJA, MFALILA AG JJA AND OMAR JA

[zJDz]Judgment

Mapigano and Mfalila, Ag. JJ.A. and Omar, J.A.: Moses Kasisi, also known as A Charles Deo, was brought to the Court of Resident Magistrate at Kisutu along with two other persons jointly charged with four counts of robbery with violence contrary to sections 285 and 286 of the Penal Code, one count of rape contrary to section 130 of B the Penal code, and one count of unlawful possession of offensive weapons contrary to section 8 (1) of the National Security Act, 1970. It has been contended before this court that the count of unlawful possession of offensive weapons was flawed, but we will leave that for later. C

The third accused, Bernard Shabani, also known as Luto Beni, jumped bail before the starts of the hearing and it appears that he is still at large. The learned magistrate applied the relevant provisions of the law and proceeded to try Bernard in absentia. The magistrate convicted all of them on only two counts of robbery and on the other two D counts. On the day of prosecuting the other co-accused, one Haruna Rashid, also known as Alli Basho, did not turn up. Like Bernard he was sentenced in absentia. The trial magistrate handed down a substantive sentence of imprisonment for seven years to each of them and Haruna has not been arrested to-date.

Moses who was described as the second accused was dissatisfied with the convictions E and the sentences. He lodged an appeal to the High Court at Dar es Salaam. He engaged an advocate, Mr. Lipiki, to appear for him. He succeeded in part. In his judgement dated 26.11.86 the learned judge (Kazimoto, J) upheld all the convictions F and the sentences except the conviction and the sentence on the rape charge. In real terms that fractional success was hardly of any consequence. Again Moses was not satisfied and he instructed his counsel Mr. Lipiki to lodge an appeal to this court, against the decision of the High Court to the extent that it dismissed his appeal. G

The incident that gave rise to this case took place in the city of Dar es Salaam on 26.2.80 during the night. We have read the evidence that was adduced in the trial court. That which was led by the prosecution depicts the appellant and his co-accused as H forging bandits who embarked on a series of armed robberies, and who ended up by staging a sexual assault on one woman at

Ubungo. It seems to us that the case for the prosecution was mainly based on their identification by two witnesses and on the discovery of three pistols in the rooms they were occupying in a guest house called Mkwajuni. I
Three witnesses gave evidence on the side of the prosecution
1987 TLR p136
MAPIGANO AG JJA, MFALILA AG JJA AND OMAR JA
in relation to the robbery charges. The first was Nuru Ali Mohamed (PW 1). He was a A taxi driver. His vehicle was a Toyota Corolla bearing registration number MS 9109. He was driving the car along Azikiwe Street at about 8 p.m when two strangers hailed him. He stopped the car and at the instance of the two passengers he drove the car towards Upanga Sports Club. On the way at the point of a pistol one of his passengers B relieved him on the steering wheel; his wrist watch and his money. The car was driven to Tabata where he was dropped. The witness then went to the Central Police Station to make a report. On the following day he found his wrist watch, exhibit P1, came into C the custody of the police. This incident was the subject - matter of one of the two robbery counts of which the appellant was convicted, and it may be pointed out that throughout PW 1 did not even pretend to have identified his robbers.
The second witness was Basil Suprapesan (PW 2). He was relieved of his Peugeot D Car, cash and a gold chain by three bandits who menacingly levelled pistols at him. He was then driving the car along Mataka Street at about 11.20 pm. The three bandits came driving a taxi bearing registration number MS 9109. They overtook him and stopped the taxi in front, thereby blocking him. One of the bandits climbed into his car E and drove off. The other two climbed into the taxi and followed. He said the place was lit and he identified the appellant as one of the three bandits. At first he said he identified all the three bandits at a parade on the next day. Later he said that the parade in question took place a few days after the incident. Now this incident formed the subject-matter of the other robbery count in respect of which a conviction was also recorded. F
The other witness was Saiduu Nassoro (P.W.5), the woman who said she was raped at Ubungo. She had a boyfriend, a diplomat, whose name she did not disclose. The two had gone to a cine-theatre for relaxation in that evening and then to the Oysterbay Hotel G for dinner. They had then left the hotel and driven to the residence of the diplomat at Mawenya Road in Upanga. Three bandits pounced upon them at the gate. According to her, the bandits came there in a taxi and two of them climbed down, pistol drawn. The bandits despoiled the diplomat of all the money he had and then literally abducted her H and took her to the still of a forest at Ubungo where they raped her in turn. She alleged that she identified the appellant to be one of the three bandits. She said she had observed him at a lit trench where the taxi overtook another car. She added that she subsequently picked him out at an identification parade that was conducted by the police I in same night.
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MAPIGANO AG JJA, MFALILA AG JJA AND OMAR JA
The appellant was apprehended in the same night. Likewise his co-accused persons. A They were found at Mkwajuni Guest House. Each was occupying a room and in each room was a

pistol. According to SP Jeremiah Kilingo (P.W.3), he found the pistol exhibit P.3 lying under a pillow loaded with two bullets. This evidence was not in dispute. B

The defence of the appellant and the co-accused were similar. Both were residing at Mwananyamala in the city. They said nothing about the allegations of robberies and rape that were levelled against them. They said nothing about the pistols that were found C in the rooms they were sleeping. Their evidence was virtually confined to their arrest at the guest house, the torture they underwent at the hands of the police, and their subsequent detention.

The trial magistrate accepted the evidence of P.W.1 Nuru and P.W.2 Basil, and relying on the identification of the appellant by P.W. 2 he found that the appellant was one of D the bandits who robbed the two witnesses. He also accepted the evidence of P.W.5 Saiduu and her identification of the appellant and accordingly found that the appellant was one of the bandits who raped her. Next he found that the appellant and the two co-accused were found each possessed a pistol, and in the absence of any explanation E as to how they came by the firearms he concluded that their possession of the weapon was illegal.

As we have shown, the decision of the trial magistrate in regard to the rape charge was upset by the High Court. Citing three decisions, the judge held that the trial magistrate F had erred in that he had not directed himself to the requirement of corroboration in sexual offences and in that he had not warned himself of the dangers of acting on the uncorroborated testimony of the complainant. We wish to make a short observation about this particular matter.

We agree that it is the rule that in any sexual offence, if the person against whom the G offence is alleged to have been committed be an adult, the court should warn itself that it is not safe to convict on the uncorroborated evidence of the complainant but that if it is satisfied of the truth of the complainant's evidence, it may, after paying attention to the H warning, nevertheless convict. We understand that the wisdom underlying this rule came from the 17th Century English jurist Sir Matthew Hale, who wrote: "rape is an accusation easily to be made and hard to be proved, and harder to be defended by the party accused.." There has been a change of attitude in some quarters and the point has I been made that the protection constructed around a rape accused by Western

jurisdictions are the envy of a murder accused. But we would not really like to go into A the matter at any great length. We may conclude by only saying that it may now be desirable to relook into the whole question of corroboration as it relates to sexual offences.

We turn to the grounds set forth in the memorandum of appeal. The first two grounds are directed at the finding of the two courts below in regard to the identification of the B appellant by P.W. 2 Basil. It was Mr. Lipiki's contention that the evidence of this witness was unsatisfactory, and we understood him to argue that if the learned judge has carefully scrutinized that evidence he would have reached the conclusion that the C identification was not really freed from error. With regard to the identification of the appellant at the scene of crime i.e Mataka Street, Mr. Lipiki has pointed out that there was no evidence as to the source of the light that illuminated the place and as to its degree of brightness. And with regard to the

identification of the appellant at the parade, D the learned counsel has submitted that it was not established that the parade had been properly conducted i.e in terms of R. v Mango Manaa (1936) EACA 29. He said he invited us to liken such parade proceeding to an accused's extra-judicial statement. According to him, the prosecusion is obliged to establish the propriety of the proceeding E in every case in which it wants the extra-judicial statement introduced into the evidence, the absence of any objection by the defence notwithstanding. Mrs Malecela who appeared for the Republic before us disagreed.

The other two grounds of this appeal concern the possession of the pistols and the F arguments advanced by Mr. Lipiki in this court and in the High Court had two limbs. In the first place Mr. Lipiki submitted that there was no solid and constraining evidence that the appellant was in possession of the pistols. In the legal sense, he submitted, possession connotes knowledge on the part of the possessor. The circumstances, he G further submitted, did not rule out the possibility of the pistols having been planted in the rooms or left there by other prsons who had had access to the room. Secondly, Mr. Lipiki argued that the charging of possession of three pistols in one count was a misjoinder, given the circumstances as presented by the prosecution. Mrs. Malecela H would not subscribe to that view and she would not associate herself with Mr. Lipiki,s other contention that there was a miscarriage of justice, that is if there was actually a misjoinder.

Addressing ourselves to the question of identification we have to point out that this was I an issue of fact. In our view we think that

the finding of the lower courts on this point was open to them and in principle we see no A good reason to disturb that finding. Indeed, the appellant's possession of the pistol in that very night was, in our view, a circumstance that lent some support to the identification of the appellant by PW 2 Basil. It has been suggested here that the pistols B that P.W. 2 saw were possibly toy-pistols. Surely we cannot treat that argument with any seriousness, it is drawn too much on imagination.

We have been urged to equate an identification parade proceeding with an extra-judicial statement proceeding. We have been invited to hold that the prosecution should have C led evidence to establish the propriety of the parade, regardless of the fact that there was no suggestion that it was improperly conducted. We regret we cannot do so.

For one thing, an extra-judicial statement, if it contains an admission or a confession, is at D law substantive evidence. An extra-judicial parade proceeding is not substantive evidence, it is only admitted for collateral purposes, in the majority of cases it serves to corroborate the dock identification of an accused by the witness, in terms of section 166 of the Evidence Act, 1967. For another, it is wrong to say that the prosecution is E obliged to prove the propriety of an extra-judicial statement in every case in which the prosecution seeks to adduce it, even where the admission of the statement is not resisted. The law does not say so and we have absolutely no desire to change it.

We turn to consider the question of possession. Mr. Lipiki is perfectly right in saying F that possession connotes knowledge on the part of the possessor. Common sense and justice require that it be so. The words of Lord Parker in R. v Cavendish [1961] 1 W.L.R 1083 at p. 1085 bears repeating here: for a person to be found to have had G possession, actual or constructive, of goods it must be proven either that he was aware of their presence and that he exercised some control over them, or that the goods came, albeit in his absence, at his invitation and arrangement. But it is also true that mere possession sometimes denotes knowledge and control. The example par excellence is H where, in a case of robbery with firearm violence. The robber is caught at the scene wielding the weapon. His wielding of the weapon would inevitably imply knowledge and control on his part. Each case must be decided on its own set of circumstances.
In the instant case the appellant was found in a room in a guest house. He was alone I and the pistol was found lying underneath
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the pillow. He owed the court a plausible explanation as to how the weapon came to be A there. There was none that came from him. In the circumstances we are satisfied that the court was entitled to find that he was in possession of the pistol and we think that his advocate's suggestion in the High Court and before us that the pistol might have been put into the room by some one else is far-fetched. B
Finally, we come to the question of mis-joinder. Standing alone, the charge of unlawful possession is, on the face of it, quite perfect, and for a person who did not know the evidence that the Republic had assembled against the accused persons, when the accused were first brought to the court to answer the charge, it was, at the conclusion of C the evidence of the prosecution, rather a case of the evidence not fully supporting the charge. We agree that it was wrong to charge the appellant with possession of the other two pistols that were found with the other two accused in the other rooms. In view of the evidence that was adduced we think that there should have been three separate D counts of unlawful possession in this case. That was a procedural error and we are satisfied that the error did not occasion a failure of justice. We set it right by convicting the appellant of unlawful possession of only one pistol namely exhibit P.3, and with that we dismiss the appeal. E
Appeal dismissed.
1987 TLR p140
F
[zRPz]ZABRON PANGAMALEZA v JOACHIM KIWARAKA & ANOTHER 1987 TLR 140 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Omar JA, Mfalila Ag JJA & Mapigano Ag JJA

28th October, 1987 G
Flynote

Civil Practice and Procedure - Lack of confidence in trial magistrate - Application to have H case transferred to another magistrate - Refusal by trial magistrate to transfer case on ground that no sufficient reasons have been given - Magistrate proceeds to hear case - Whether proper.
Civil Practice and Procedure - Lack of confidence in trial magistrate - Refusal by magistrate I to transfer case to another magistrate -
1987 TLR p141
Party refuses to prosecute his case - Magistrate dismisses suit under O.XVII Rule 3 of the A Civil Procedure Code - Whether the Rule applies in such a situation.
Civil Practice and Procedure - Revision - Provisions under which High Court may exercise revisional jurisdiction. B
-Headnote
The appellant, original plaintiff, in the Resident Magistrate's court made the following applications. First that he wished to proceed without counsel. Secondly, he wanted the case to be heard before another magistrate. The magistrate granted the first application C but refused the second on the grounds that there were no sufficient reasons as to why he should not hear the case. The plaintiff refused to give testimony. The magistrate dismissed the case under Order XVII rule 3 of the CPC. The appellant filed an application in the High Court under section 79(1)(c) of the CPC, section 44(1) of the D MCA and any other enabling legal provisions, asking it to revise the proceedings of the Resident Magistrate's Court. The High Court dismissed the application on grounds that section 79(1)(c) of the CPC did not apply to this case amongst other reasons. The High Court did not consider the other provisions under which the application was made. The E appellant applied for leave to appeal to the Court of Appeal which was duly granted.
Held: (i) Justice must not merely be done, but must be seen to have been done. The safest thing to do for a judicial officer who finds his integrity questioned by litigants or F accused persons before him, is to give the benefit of doubt to his irrational accusers and retire from the case unless it is quite clear from the surrounding circumstances and the history of the case that the accused is employing delaying tactics;

(ii) order XVII rule 3 is not applicable to the circumstances of the present case. G This rule is meant to deal with a situation where a party for one reason or another has asked the court on a previous occasion to give him more time in order to complete something in the case and fails to do this within the time given:

(iii) unlike section 79(1)(c) of the CPC, section 44(1) Magistrates Courts Act H goes beyond jurisdictional issues and covers all situations where it appears that there has been an error material to the merits of the case involving injustice;

(iv) by insisting to hear the case against strong opposition of the appellant and I proceeding to dismiss it, the magistrate not only
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MAPIGANO AG JJA, MFALILA AG JJA AND OMAR JA
confirmed appellant's worst fears of his having a personal interest in the matter, but also A amounted to an error material to the merits of the case involving injustice to the appellant.

Case Information
Appeal allowed. B
Cases referred to.

1. Matemba v Yanulinga [1968] E.A 643
2. Balakrishna v Basudeva (1917) 44 I.A 261

[zJDz]Judgment
Mfalila and Mapigano, Ag. JJ.A. and Omar, J.A.: The appellant Zabron C Pangamaleza was the plaintiff in Iringa Resident Magistrate's Court Civil Case No. 9 of 1986 in which he sued the two respondents claiming special damages amounting to shs. 100,000/= and general damages for wrongful arrest, beating, charges and convictions as a result of which he was injured in his credit, character and reputation. He also alleged D to have lost in the process working implements worth shs. 58,000/= and 640 bags of charcoal worth shs. 89,600/=.
After the pleadings were completed or at least the court thought they were, the trial E opened before the Senior Resident Magistrate Mr. S J Kanyama on 29th January, 1987. The appellant made the following two applications before the trial got under way. First he told the court that he wished the case to proceed without his counsel in whom he no longer had confidence. Secondly he informed the presiding Senior Resident F Magistrate that he wanted the case to proceed before another magistrate because he said he did not have confidence in him as he did not trust him. The learned Senior Resident Magistrate made the following ruling: G

As regard to the 1st request by the plaintiff to reject the services of his advocate, the application is readily granted by the court, because he has the right and is completely free to employ or reject the services of an advocate. Since he now tells the court that he no longer wishes to employ the services of his advocate Mr. Mwakasungula, his application is granted. H The plaintiff will henceforth conduct his own case. As regard to his second limb of application, in which he applies that I should not try his case because in his own words "sikuamini" when pressed further on why he does not trust me as a trial magistrate, he says I "sikuamini hivi hivi", owing to this I think that it would be a total abdication of my duties as a magistrate,

if I were to grant the plaintiff's application on such flimsy excuses. (sic.) I do not know either of A the parties to this case outside the walls of this court, and wish to state that my conscience is quite clear. Unless therefore there are any other reasons, I will hear this case because it is my duty to do so generally since one of the defendants has travelled all the way from Mbeya. B
The plaintiff than told the magistrate:

Since you still insist to hear this case and I do not want you to hear it, then I will not say C anything.

Thereupon the Senior Resident Magistrate made the following order:

The plaintiff's refusal to testify in proof of his suit, is tantamount to a refusal to prove his suit, D and this being the case I take it as a withdrawal of his right to prove the suit before the court. For these reasons, since both the defendants are before the court and have travelled all

the way from Makete and Mbeya respectively in defence of the suit which the plaintiff does not wish E to prosecute, I hereby see no alternative except to dismiss the suit. The suit dismissed for want of prosecution and the plaintiff is condemned to pay all costs.

The appellant filed an application in the High Court at Mbeya under section 79 (1) (c) of F the Civil Procedure Code, Section 44 (1) of the Magistrates' Courts' Act "and any other enabling provision of the law" asking that court to revise the proceedings of the Resident Magistrate's Court at Iringa in this case and set aside the order dismissing his G claim for want of prosecution.

The application came before Mtenga J., who dismissed it holding that the allegations against the trial Magistrate by the appellant were baseless and improper and that in any H case section 79 (1) of the Civil Procedure Code on which the application was based applied to jurisdiction alone and that once it is settled that a court has jurisdiction to determine a question and it determines that question, it cannot be said that it has acted illegally or with material irregularity because it has come to an erroneous decision on a I question of fact or even law. The learned judge gave another reason for dismissing the application.

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He said that since the appellant was present in court and when called upon to present his A case he declined to do so without any justifiable reasons, the Senior Resident Magistrate was right in dismissing the suit as he was entitled to do under the provisions of order XVII Rule 3 of the Civil Procedure Code which provides: B

Where any party to a suit to whom time has been granted fails to produce his evidence, or to perform any other act necessary to the further progress of the suit, for which time has been allowed, the court may, notwithstanding such default, proceed to decide the suit forthwith. C

This, the learned judge said, was the position in this case hence there was no room for the High Court to exercise its revisional powers in the matter. The appellant applied for leave to appeal to this court against this order and the High Court (Mwaikasu, J.) in a D very elaborate ruling allowed the application and granted leave to appeal.

I think Mtenga, J. was right in refusing to exercise his revisional powers under the provisions of section 79(1) of the Civil Procedure Code. For as the earlier decisions in E Matemba v Yanulinga [1968] E.A. 643 and Balakrishina v Vasudeva (1917) 44 I.A. 261 quoted by the learned judge rightly state, this section is primarily if not wholly concerned with jurisdiction and it cannot be said that in this case the Senior Resident Magistrate irregularly or illegally assumed jurisdiction or did not exercise it. As far as the F jurisdiction of the Magistrate and the court is concerned I can find nothing wrong with the way it was exercised. Hence if this had been the only provision under which the High Court could assume revisional jurisdiction, I would have had no difficulty with Mtenga, J.'s decision dismissing the application. But not only are there other provisions G under which matters, but they had actually been cited in the application. The applicant had cast his net as widely as possible. He cited section 44(1) (b) of the Magistrates' Courts Act 1984 which provides:

44 (1) In addition to any other powers in that behalf, conferred upon the High Court, the High H Court

(a) ....

(b) May, in any proceeding of a civil nature determined in a District Court or Court of a I Resident Magistrate, on application being made in that behalf by any party or of its

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own motion, if it appears that there has been error material to the merit of the case, A involving injustice, revise the proceedings and make such decision or order.

The learned judge did not even address himself to this provision to see whether it B widened the High Court's civil revision jurisdictional powers. Unlike section 79(1) of the Civil Procedure Code, this section goes beyond jurisdictional considerations. It covers merits of the case, that is to say the High Court can assume revisional jurisdiction in any case where it appears that there has been an error material to the merits of the C case involving injustice. In the present case the appellant had challenged the impartiality of the presiding Magistrate and therefore felt that he would not receive fair treatment in his court. Accordingly he applied for the case to be tried by another magistrate. The magistrate brushed aside these objections holding that it would be a total abdication of D his duties as a Magistrate were he to grant the application on such flimsy excuses and declared that his conscience was clear. I have no doubt at all that it was, but that was not the point. The point was the state of mind of the plaintiff before him. So while I am certain that the magistrate would have ensured that justice was done had he tried the E case, the plaintiff before him would not have seen that it was actually done. By insisting to hear the case against such strong opposition and proceeding to dismiss it, the magistrate not only confirmed the appellant's worst fears of his having a personal interest F in the matter, but also amounted to an error material to the merits of the case involving injustice to the appellant. It is for this reason that the approach of the learned judge was wrong. He approached the whole case as if he were trying the merits and truthfulness of the appellant's allegations against the presiding magistrate. He said at page 23 of the record: G

I must say without hesitation that the allegations levelled against the learned trial Senior Resident Magistrate by the applicant are baseless and they are unwise as well as improper and they are lacking in respect to the learned trial Senior Resident Magistrate as well as to the H court....

As indicated, this was straying into wrong ground. First of all, there was no evidence before the learned judge which enabled him to conclude that the allegations against the I Resident Magistrate were baseless unwise and improper. Secondly, as to lack of respect, I

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thought that judicial officers should earn not demand the respect of members of the A public.

The safest thing to do for a judicial officer who finds his integrity questioned by litigants or accused persons before him, is to give the benefit of doubt to his irrational accusers and retire from the case unless it is quite clear from the surrounding circumstances and B the history of

the case that the accused is employing delaying tactics. Apart from ensuring that justice is seen to be done, he saves himself from unnecessary embarrassment. This can easily be done at a court like Iringa where there are several Magistrates.

Lastly I will deal with the last ground of appeal which was also raised by Mwaikasu, J. in C his ruling, namely, whether the learned judge was correct in law and in fact in holding that the trial magistrate acted properly when he dismissed the suit as Order XVII Rule 3 of the Civil Procedure entitled him to do so.

This Order and Rule which has already been quoted but which for ease of reference I D will reproduce again provides as follows:

> Where any part to a suit to whom time has been granted fails to produce his evidence, or to perform any other act necessary to the progress of the suit, for which time has been allowed, E the court may, notwithstanding such default proceed to decide the suit forthwith.

As was indicated earlier in this judgement, the learned judge stated that the trial magistrate rightly dismissed the suit because this section allowed him to do so after the F plaintiff deliberately refused to lead evidence in proof of his case. But the wording of this rule is such that it cannot be applicable to the circumstances of the present case. This rule is meant to deal with a situation where a party for one reason or another has asked G the court on a previous occasion to give him more time or order to do or complete something in the case and fails to do this within the time given. In the present case the appellant had not asked for more time to do anything and failed to do so and was thus asking for more time. He was simply asking the court to transfer his case to another H magistrate and the reasons he gave were not flimsy. The learned judge was therefore in error in thinking that the Magistrate could dismiss the appellant's suit under this rule.

Perhaps I should mention a further point which is not necessary for the determination of this appeal but important for the future conduct of the case. At the time the trial started, I the pleadings do

not appear to have been completed.

There are two defendants, yet only one of them had filed a written statement of defence A by 29th January when the trial opened. The second defendant had not, so I do not understand how the case could have proceeded in respect of him had the hearing taken off.

For all these reasons I am satisfied that the Resident Magistrate was wrong in dismissing B the appellant's suit. He should have stepped down from hearing the case after one of the parties has recused him.

Accordingly I would allow the appeal, set aside the orders of both the Resident C Magistrate's Court and the High Court with an order remitting the case to the court of the Resident Magistrate at Iringa for hearing de novo before another magistrate.

I would also award the appellant his costs both in this court and in the High Court.

As the other members of the court agree, it is so ordered. D

Appeal allowed.

E

[zRPz]HALIMA KAHEMA v JAYANTILAL G. KARIA 1987 TLR 147 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

29 October, 1987 F

Flynote

Family law - Custody of infant child - Mother unable to take care of the child.

Family law - Custody of a child - Material changes on the part of mother - S. 133 of the Law G of Marriage Act of 1971.

-Headnote

At trial the appellant admitted in writing her inability to take care of the child. The trial court unanimously granted custody to the father. Appellant's appeal to the District H Court was rejected. She is appealing to the High Court arguing that there are material changes in her circumstances, to enable her to maintain the child.

Held: (i) The welfare of the child requires that it be in the hands of either parent not I child's grandparents;

(ii) where there are material changes in the circumstances of

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the parties after a custody order has been made, the aggrieved party has to apply to the A same original court so that it varies its earlier order;

Obiter: Under s.125(3) of Law of Marriage Act, 1971, there is a rebuttable presumption that it is for the good of an infant to be with the mother. The younger the B child, the harder it is to rebut that presumption.

Case Information

Appeal dismissed.

No case referred to. C

[zJDz]Judgment

Mwalusanya, J.: The respondent Jayantilal G. Karia made an application at Nansio Primary Court in Ukerewe District, claiming the custody of an infant child, a boy called D Sunny aged more than one year. The child was born to the appellant Halima d/o Kahema with the respondent, out of wedlock. When the application was made both mother and father of the child were living separately in Ukerewe District. The child at the time of the application was under the custody of the appellant's parents at Mwanza. E

The application was not controverted at the trial, as the appellant mother readily admitted that she was not in a position to take care of the child who was then with her parents at Mwanza. The admission was in writing and duly signed by her. The trial court finding that the appellant mother had no objection to granting the custody of the F child to the respondent, unanimously

granted the application. That was quite proper as the welfare of the child required that the child be in the hands of either of the parents rather than the child's grandparents.

The mother's appeal to the District Court was in my view rightly rejected. As correctly G pointed out by the District Court, as the mother was not in the position to take care of the child, it was not in the interest of the welfare of the young child to remain with his grandparents when his father was fit and able to maintain him.

In the memorandum of appeal, the appellant has argued that there are material changes H in the circumstances of this case, to enable this court to vary the original order made by the Primary Court. She said now she is ready to take the child and maintain him. She also said that she is employed and has acquired her own accommodation at her new station in Mwanza. I

The answer to that submission is that the appeal is

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misconceived. Under s. 133 of the Law of Marriage Act. No. 5 of 1971, if there are any A material changes in the circumstances of the parties, after a custody order has been made, the aggrieved party has to apply to the same original court so that it varies its earlier order. An appeal to a higher court will not do. The original court has to be B satisfied that indeed in the meantime, there has been material changes in the circumstances of the parties since the original order of custody was made, to warrant variation of the same.

The application could be in the same original case file; but one may choose to file a fresh application in the same court for variation of an original order. And perhaps a fresh C application in a different court of concurrent jurisdiction will be proper so long as the applicant satisfies the court that there are material changes warranting a variation of an order made by another court. But I am sure, an appellate court is not a proper forum for that prayer. D

In this case it appears highly probable that indeed there are some material changes in favour of the appellant mother. This is because she is now ready to take the child instead of dumping it at her parents. And moreover she has secured her own accommodation at her new station in Mwanza. And thirdly it has all along been E conceded since the trial commenced that she is gainfully employed in the government with a reasonable salary. And most important in favour of the mother is that the child is under seven years of age (infant he is only 1 year and three months old) there is a rebuttable presumption that it is for the good of an infant to be with his mother. The F younger the child, as is the position here, the harder it is to rebut the presumption. Let it be noted here that the question of legitimation of the child is irrelevant in the question of deciding the granting of the child. Therefore the Primary Court and the District Court were to go out of their way in considerating the matter of legitimation of the child. G

In the event this appeal fails and it is dismissed. As indicated earlier the appellant should go to the original court for an application for variation of its original order as provided under s. 133 of the law of Marriage Act No. 5 of 1971. This is not the proper forum for H that prayer. I make no order for costs for this appeal.

I Order accordingly.

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A

[zRPz]MARATO s/o MATIKU v WANKYO SANAWA 1987 TLR 150 (HC)

Court High Court of Tanzania - Mwanza
Judge Munyera J

18 November, 1987

Flynote

Civil Practice and Procedure - Res Judicata - Appellant files a fresh petition in the grounds B previously rejected.

-Headnote

At trial, the petitioner sought a divorce decree claiming respondent had left the matrimonial house for a long time. The court granted the decree. Respondent appealed C arguing it was appellant who had sent her away for modification. The District Court reversed the Primary Court's decision. Petitioner delayed for six months to appeal against this latter decision. His application to be allowed to appeal out of time was dismissed. The appellant then went to the same primary court and filed the present D petition in the same grounds. The District court rejected said ground on the basis of res judicata.

On appeal the question is whether this petition is res judicata.

Held: Where grounds relied in the later petition are the same as those dismissed E previously, then the petition is res judicata.

Case Information

Appeal dismissed.

No case referred. F

[zJDz]Judgment

Munyera J.: The appellant was the petitioner in the Primary Court. He petitioned against his wife, the respondent for divorce. He claimed that the respondent had left the matrimonial home since 1981 and sicne then she has not returned. The respondent G denied that she left the matrimonial home on her own, it was the appellant who had sent her home, that the source of all this trouble is because she is barren, she has not produced a single child since their marriage in 1975. The trial court granted a decree of divorce and blamed the respondent for staying away for such a long time. She appealed H to the District Court which reversed the judgement of the trial court and dismissed the appellant's petition as res judicata. In turn the appellant brought this appeal.

This case has a history. In 1981 the appellant filed a divorce petition, Civil Case No. 48/81 same Primary Court. He alleged that the respondent disappeared from home I since 7.4.81 and up to

the time of filing the petition on 21.9.81 she had not returned. The respondent replied A she had left home with the appellant's permission to find treatment for her stomach ailments which

have prevented her from conceiving a child. The trial court rejected her defence and granted divorce. She appealed to the District Court, Matr. Appeal No. B 7/82, and won. The Senior District Magistrate (Mushumbusi) ruled that the respondent had gone for treatment, reversed the judgement of the trial court and declared the parties as still husband and wife. The judgement was delivered on 29.5.82. The appellant remained mum till the month of November 1982 when he filed an application in C this court (PC Civil Application No. 29/82) to be allowed to appeal against the judgement of the District Court out of time. The application was dismissed on 17.5.84, so the judgment of the District Court held good, the parties continued to be husband and wife. On 16.12.85 the appellant went to the same primary court and filed this present D petition the grounds being the same as those he gave in the earlier petition and which the District Court had rejected. That is why the District Court declared the petition res judicata. In admitting this appeal the admitting judge posed a question "whether this petition was res judicata". E

So the issue is whether the present petition was res judicata. The law of marriage is silent whether a judgment of court dismissing a petition is a bar to any future petition by the same spouse. In my opinion such judgement may or may not be a bar, depending on circumstances. If for example, after dismissal of a petition, the spouse reconcile and F resume cohabitation, later one of them commits a matrimonial offence, the offended spouse can petition for divorce even if he/she is the same one whose petition was dismissed in earlier case. This is so because this later petition is a fresh matter altogether. In this particular case since the District Court dismissed the appellant doesn't G say why but the respondent says she is unwanted, she has tried her best by asking the CCM and elders to reconcile them but the husband always became uncooperative. The respondent deserves sympathy, she is barren not self induced but by the act of God, that is why the husband is no logner interested in her but in his bridewealth. I find the H grounds relied on this present petition are the same as those dismissed by the District Court in its Matr. Appeal No. 7/82 and the petition was rightly declared res judicata.

Even if the petition was not res judicata the appeal would still be dismissed. None of I the parties had called any witnesses in this petition and the trial court dealt with it in a summary manner.

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The appellant's case never even approached the standard of proof required in civil A cases. No court worthy of the name would have accepted his story. I dismiss the appeal with costs.

B Appeal dismissed.

1987 TLR p152

C

[zRPz]PROTAS s/o KAGARUKI v REPUBLIC 1987 TLR 152 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Makame JJA, Omar JJA and Mfalila Ag JA

19th November, 1987
Flynote
Evidence - Cross-examination - A child of 8 years not cross - examined - Whether unsworn D evidence of such child can be cross-examined.
-Headnote
Appellant was charged in the High Court under the Economic and Organized Crime Control Act for being in possession of property suspected of having being stolen. He E was convicted and sentenced to twelve years imprisonment. The only evidence given by an eye witness of was a boy of 8 years who was not cross-examined as his evidence was not given an oath as per s. 293 (3) of Criminal Procedure Act of 1985. Appellant appealed against conviction and sentence. F
Held: As a matter of trite law, the unsworn evidence of a child could be cross-examined, as his evidence as a witness affects the fortunes of the accused. G
Case Information
Appeal allowed.
No case referred.
[zJDz]Judgment
Omar and Makame, JJ.A. and Mfalila, Ag. J.A.: Appellant was charged in the H High Court at Bukoba under Economic and Organized Crimes Control Act for being in possession of property suspected of having been stolen. He was convicted and sentenced to 12 years imprisonment. He is now appealing against both conviction and sentence. I
Appellant was a tenant in a house occupied by many people
1987 TLR p153
OMAR JJA AND MAKAME JJA AND MFALILA Ag JA
including P.W.2 a child of 8 years by the name of Waswa, her mother Belina P.W 3 A Yunus Waziri a militiaman and some bar maids. P.W.2 Waswa stated that on 12.5.85 he was at home about 10.am when he saw appellant come out of his room holding a black bag and putting it against the wall of his room. He then covered it with corrugated B iron sheet. Appellant then went away. Waswa then informed his mother Belina who told P.W.3 Yunus about the suspicious hand bag which was hidden by the appellant. Yunus went and told his ten cell leader Abdul s/o Mushobozi to inform the police. The police were immediately notified and they went to the scene and saw the handbag, they C opened it and found an Uzi gun with its magazine which had 19 rounds of ammunition. There was also in the bag a police uniform which consisted of a shirt, trousers, belt, hat and its crown and five torches. The room of the appellant was searched but nothing incriminating was found.
While the police and other people who witnessed the search were walking away to the D market the appellant was spotted and on seeing the crowd approaching him he took to his heels. He was chased and arrested. Appellant according to P.W.1 who arrested him said that appellant told him that he was running to the market to get his things he had E forgotten there, and as to whether he knew the handbag, he said to have told P.W.1 that one Marcel of Kamachumu whose whereabouts he did not know had entrusted him with the said handbag for custody and that he had put it outside his room and covered it with corrugated iron sheets.

P.W.1 denied taking a Phillips 4 band Radio Cassette, a tape recorder and turntable F from appellant's room during the search, so did P.W.3. He too denied that any of the appellant's things were taken away by the police from appellant's room. P.W.1 admitted on cross-examination that there was a make shift fence of old tin sheets outside G this particular house and anybody could steal the bag or could plant it there but according to Waswa it was appellant who Waswa saw putting the bag there and covering it with corrugated iron sheet.

The appellant in his defence stated that his job was that of repairing radios. On the H morning of 12.5.85 a customer one Marcel who had brought him a radio cassette to repair the previous day, appeared at his home with two companions. Marcel enquired if appellant had finished repairing his radio and appellant replied that it would be ready in three days time. Then they all dispersed he, appellant and his sister-in-law went to the I market, bought fish and gave her to take home to cook.

At 10.30 a.m. as he was returning home he saw a crowd and heard an alarm that was A the Fundi you were looking for. It was a big crowd so he ran away in fear of his life. He was chased and arrested and taken to the police station. He was also shown the four Philip Band Radio Cassette, the tape recorder and turntable and he admitted that all these items were his. He was then forced to put on the police uniform and was B photographed in it. Appellant further stated that the items found in his room and were denied by the police P.W.1, and P.W.3 the militiaman to have been taken to the police were actually admitted by P.w.2 and P.W.3 in their police statements to have been so taken. The police statements were on appellant's assertion that these items including the C five torches were taken out of his room by the police.

Appellant went further and elaborated on that aspect of his cross-examination of witnesses about the enmity existing between Belena the mother of P.W.2, Waswa, over D the allegation of theft by Belena against appellant's wife. P.W.3 admitted that there was such an allegation of theft which culminated in the arrest of appellant's wife as well as the friend and guest of P.W.3's wife. So we say the enmity between P.W.2 Waswa's mother and the appellant may well have existed. And the suggestion by the E appellant in his Memorandum of Appeal that Waswa could have been tutored by his mother to start the ball rolling about the black bag so to speak, and later to be taken up by the elder tenants living in the house, may have some force. Especially if it is remembered that Waswa was prevented by the court being cross-examined, it being F argued by the court that his evidence was given not on oath only in the case accused person giving their evidence not on oath can they now according to Criminal Procedure Act sec. 293(3) be cross-examined. The trial judge obviously erred here. The unsworn evidence of the boy Waswa could be cross-examined as well, as a matter of trite law. G

After all his evidence as a witness affects the fortunes of the accused person and so must be tested by cross-examination.

Appellant's plea as gathered from his evidence and his memorandum of appeal is as follows: H

(a) That he did not put the bag there

(b) Waswa was tutored to say what he did but he did not see the appellant putting the bag against the wall and hiding it. I

(c) Appellant was not allowed to cross-examine. Waswa on

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OMAR JJA AND MAKAME JJA AND MFALILA Ag JA

the various matters connected with enmity between her mother and appellant A which could have shown how appellant was framed and how Waswa was tutored.

(d) The police took his radio taperecorder, turntable and torches and there is evidence to establish this fact and yet the police P.W.1 and the militiaman B P.W.3 his fellow tenant denied in court that these articles were ever removed from his room. In hiding this fact of the missing articles the police after discharging the appellant's colleagues who had been in custody for 1 year and 4 months for the same offence had to decide to go ahead with the C prosection of appellant.

(e) P.W.1 D/C Exavey admitted in cross-examination that "there is a makeshift fence of old tins sheets. Anybody could steal from it and anybody could have planted the bag there". D

(f) The opening of the bag and the search of appellant's room were all done in his absence.

(g) That the house is accessible to many outsiders who go in search of favours of bar maids living there or of appellant's services as a radio repairer. It is not E strictly a private house, it is more of a public place.

We cannot ignore the fact of the argument in these grounds urged by the appellant. We find ourselves therefore unable to accept the evidence of this child Waswa as an eye F witness to the hiding of the bag by the appellant containing those articles found. As Waswa is the sole eye witness, his testimony if it is doubted must destroy the prosecution case.

We find therefore the appeal has merit. We allow the appeal quash the conviction and G order that the appellant be released forthwith unless otherwise lawfully held.

Appeal allowed.

1987 TLR p156

A

[zRPz]FATUMA AWADH SAID EL HIND v SALIMA ALI 1987 TLR 156 (CA)

Court Court of Appeal of Tanzania - Tanga

Judge Omar JA, Mfalila Ag JJA and Mapigano Ag JJA

28th November 1987 B

Flynote

Administrative law - Formulation of a Master Plan in an urban area - Failure to comply with mandatory procedure laid down in governing legislation - Effect - s. 27 Town and Country Planning Ordinance. C

Land law - Formulation of a Master Plan in an urban area - Whether it extinguishes existing property rights.
-Headnote
This case involved a dispute over a plot described as Plot No. 1 Block 38 Ngamiani D Area, Tanga Municipality. In the High Court the evidence of the land officers was that prior to 1975 the plot in dispute consisted of two plots. The first plot was occupied by the respondent and the second occupied by the appellant. In 1974 the whole of Ngamiani was resurveyed under the Tanga Master Plan re-organization scheme, purportedly done under the Town and Country Planning Ordinance whereby existing E plots were reorganized and amalgamated. In this exercise the two adjacent plots were amalgamated and became one plot. The trial court gave judgement to the appellant, but on appeal to the High Court the trial court's decision was reversed hence the present appeal. F
Held: (i) The legislation provides for two kinds of publication. The publication under section 27 refers to the declaration by the Minister that he intends to apply the provisions of the Third Schedule. Secondly, after he has prepared the scheme he must deposit a G copy of such scheme at a place deemed appropriate and a notice of such deposit must then be published in the Gazette, to enable members of the public to inspect it. There is no requirement for publishing the fact in the gazette;

(ii) since the Tanga Master Plan was drawn up and implemented in H contravention of the Town and Country Planning Ordinance, any actions purportedly taken under it were unlawful;

(iii) the formulation of a Master Plan or Scheme extinguishes all property rights since all the existing boundaries are expunged and plots re-surveyed for re-distribution. I
1987 TLR p157
MFALILA Ag JA, MAPIGANO Ag JA AND OMAR JA
Case Information
Appeal allowed. A
No cases referred to.
[zJDz]Judgment
Mfalila and Mapigano, Ag. J.A. and Omar, J.A.: The dispute over the plot B described as Plot No. 1 Block 38 Ngamiani area in Tanga Municipality, and which is the subject matter of these proceedings started way back in 1975. The parties referred their dispute to the judicial process in 1980 and has been raging ever since. Each party claimed to be the true and lawful owner or occupier of the plot. C
Both parties in our view in their respective evidence either gave an incorrect and even untrue account of the origin of the dispute or side stepped the issue altogether.
The appellant, the original plaintiff, told the trial court that she bought the house standing D on the plot from one Kanji and that at that time she did not know the plot boundaries. She therefore asked the Municipal Surveyors to survey and demarcate the plot. They did so and designated it plot No. 1 Block 38 and granted her a right of occupancy for 33 years. At this stage, she said, she had building plans prepared as she wanted to build E a hotel on the plot and

started putting materials on the site. But, she could not proceed with her building plans because the respondent was occupying the plot and still refuses to vacate.

On her part the respondent, the original defendant told the trial court that she has been in F occupation of the plot for many years and that on 26.11.76 she was given a temporary Right of Occupancy over the plot. Later she was offered the choice of buying the house on the plot. She never took up the offer she said, but she asked the court to declare her the legal occupier of the plot.

Both these accounts in our view do not accurately describe the true history of the dispute G as each party tried to portray herself as the only true and original owner of the plot which is nowhere near the truth.

The true and correct position was described by the Land Officers who gave evidence on H both sides. These were the District Land Officer Tanga, Mr Salehe Mussa Msumi, the Regional Land Officer Mr. Francis Ramadhani and a Land Officer from the Ministry Headquarter Mr. Sadiki Mrisho Matuta. The sum total of their evidence was that prior to 1975 the plot in dispute consisted of two plots. The first was plot No. 1 Block 38 I which was occupied by the respondent. The second was plot No. 15 block 38 which was

occupied by the appellant. Before 1963 both plots were freehold but after 1963 they A were held under short terms of Rights of Occupancy under the new Government Leases Act. In 1974 the whole of Ngamiani areas was re-surveyed under the Tanga Master Plan re-organization Scheme whereby existing plots were reorganized and amalgamated. In this exercise the two adjacent plots i.e Plot No. 1 and 15 of Block 38 were B amalgamated and became one plot known is Plot No. 1 Block 38. The two original plot ceased to exist. The new enlarged plot was offered to the appellant on the basis that she had developed her portion of the plot better by putting up a permanent structure C that the respondent who had a temporary grass thatched structure on her portion of the plot. Instead, the respondent was offered another adjacent re-surveyed plot in the area which she turned down insisting that she wanted plot No. 1 Block 38. This is the history of the plot as given by disinterested witnesses. It is therefore not true as each D party claimed that she owned the plot from the beginning and that the other was the tres passer.

The trial magistrate accepted the evidence of the witnesses from the Land Office and held that the appellant was currently the lawful owner of the plot in dispute by virtue of E its allocation to her after the amalgamation of the two plots. He however declined to treat the respondent as a trespasser in view of the fact that she still is holding a valid lease under a previous grant which had not been revoked following the amalgamation of the plots. Accordingly he entered judgment for the appellant, ordered the eviction of the F respondent from the portion she was occupying and perpetually restrained her from interfering in any manner with the appellant's peaceful possession and occupation of the plot in dispute.

Against this decision the respondent successfully appealed to the High Court. She argued that the grant to the appellant of the Right Occupancy over the disputed plot for G 33 years was

unlawful null and void because her previous interest in the land having not been revoked, there was nothing the Land Officer could give to the appellant.

The learned judge agreed with this argument and allowed the appeal on two grounds. H The first was that the respondent's claim over the plot was first in point of time and therefore had priority over the appellant's claim which came later when she was granted the 33 year Right of Occupancy before the respondent's right had been revoked. The grant therefore to the appellant of the 33 years Right of Occupancy was unlawful, null I and void. Secondly he held

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MFALILA Ag JA, MAPIGANO Ag JA AND OMAR JA

that the Tanga Master Plan upon which the grant of 33 year Right of Occupancy to the A appellant was based, did not exist and even if existed, he was of the firm view that the formulation of a Master Plan or Scheme for any urban area, ipso facto put an end or extinguish existing proper rights of any occupier. Accordingly he allowed the appeal B and set aside the judgement and orders of the lower court. He further "directed that the respondent now be allowed to enjoy her right of occupancy under the frame work of the law of this country".

In this appeal the appellant challenged this decision and orders. In her Memorandum of C Appeal, she challenged the judge's finding that the respondent's title on the plot was first in point of time to hers thus giving it priority and his failure to declare her the development owner under the Land Acquisition Act No. 47/67. See section 36 and 40 of the Act. She even challenged the finding that there were two plots prior to 1974 one D of which was plot No. 15. This plot she said never existed and that it was quoted on the documents in error. We are satisfied in the light of the evidence given by the Land Officers at District, Regional and National levels that this last point has no merit. We accept and we shall proceed on the basis that originally Plot No.1 Block 38 was two E plots namely Plot No. 1 and plot No. 15 which belonged to the respondent and appellant respectively. Indeed in the circumstances of this case it is the only way this dispute could have risen.

As indicated, the learned judge allowed the appeal on two main grounds. Firstly, on the F priority of the two competing claims in terms of which of them was the first in time. He held that the respondent's claim had priority over the appellant's claim and that since at the time of the grant of the 33 Years Right of Occupancy to the appellant the respondent's title had not been revoked, the grant to the appellant was unlawful, null and G void. Secondly that the Tanga Master Plan the basis of the grant to the appellant did not exist and that even if it did, it did not have the effect of extinguishing existing property rights.

The learned judge (Chua, J.) who heard the application for leave to appeal to this court, H formulated the following points of law to be determined by this court:

(a) If the scheme did come into effect prior to the amalgamation of the plots, would the act of amalgamation be lawful? I

(b) Would the amalgamation automatically revoke the

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MFALILA Ag JA, MAPIGANO Ag JA AND OMAR JA

right of occupancy which had been granted to respondent? A

(c) What remedies would the respondent have.

We are not happy with this formulation because we cannot see how the amalgamation of the plots could have been undertaken before the scheme came into effect. We think in B the light of the judge's finding the main question revolves around the existence of the Master Plan and its validity.

In stating that the respondent's claim over plot No. 1 had priority over the appellant's claim, the learned judge must have been referring to the short term titles issued after the C area was declared a re-development area by the Minister vide G.N. 185/65 on 24.4.65. But we do not see how this short title over the old plot No. 1 has any bearing over the current dispute which relates to the new and enlarged plot No. 1 Block 38 and D which is the subject matter of the grant to the appellant of a 33 year right of occupancy. The validity of this grant cannot be impunged on the basis that it is later in time than the respondent's title, which referred to a different plot. The respondent can only succeed by successfully challenging the validity of the act of amalgamating her old E plot No. 1 with the appellant's old plot No. 15 into a single plot No. 1 Block 38 under Tanga Master Plan. All the Land Officers testified whether for the appellant or the respondent to the effect that the plot now in dispute i.e plot No. 1 Block 38 Ngamiani areas was created from the amalgamation of two adjacent plots in the course of F implementing the Tanga Master Plan - the two amalgamated plots Nos. 1 and 15 had been occupied on short term titles by the present disputants. The Land Officers told the trial court that the new enlarged plot so created had to be offered to one of the former owners of the two old plots. The plot was offered to the appellant because she had put G up a more permanent structure on her portion of the plot than the respondent who had a simple grass thatched hut. The soundness of this criterion was not challenged. But the point was taken both in the High Court and in this Court that this amalgamation and the subsequent grant of the amalgamated plot to the appellant was invalid because the H Master Plan upon which it was based either does not exist or if it does it is invalid for having been effected without complying with the relevant governing legislation i.e section 27 of the Town and Country Planning Ordinance Cap. 378. The basis for the view that the much talked about Tanga Master Plan did not exist is that nobody produced the I Master Plan itself or the

Government Notice bringing it into effect. We are very surprised that the document or A plan which was talked about so much by all the officials including the Town Planning Officer should not have been obtained from the Office of the Municipal Director in Tanga and exhibited in court. Counsel who represents the appellant, fully aware of the B importance of this document to his client's case sat idly by all this time when he could have walked the few metres to the Municipal Hall to obtain the plan. However we tend to agree with the observation of Chua, J. that the existence of such a Master Plan is more likely than not in view of strong references to it by officers better placed to know C of its existence. Its non production is a result of incompetence and negligence. We would therefore accept the evidence of the witnesses to the effect that there was a Tanga Master Plan in the course of whose implementation plots No. 1 and

15 Block 38 were D pooled and a single enlarged plot No. 1 Block 38 created and granted to the appellant. The validity of this grant to the appellant depends on the validity of the Master Plan under which it was created and granted.

A Master Plan or detailed scheme such as the one envisaged here is conceived and prepared under the provisions of section 27 of the Town and Country Planning E Ordinance (Chapter 378). The section provides as follows:

27-(1) Where the Minister is satisfied that, by reason of the complexity of the boundaries of land within an area scheduled or likely to be scheduled in a general planning scheme F for detailed planning, the preparation and execution of a detailed scheme for the orderly layout and development of land is impractical unless provision is made for the redistribution of land in that area, he may by notice in the gazette declare that the G provisions of the third schedule shall apply to such land and, thereupon, such detailed scheme may make provisions for the redistribution of land in accordance with the provisions of the third schedule, and the provisions of the third schedule shall apply to H such land in the execution of the scheme.

(2) Any reference in this Ordinance to a detailed scheme to which the provisions of the third schedule are applied under section 27 shall be construed as reference to a detailed scheme in which provisions may be made for I

the redistribution of land in accordance with the provision of the Third Schedule. A

The relevant provisions of the Third Schedule relating to redistribution of land in areas scheduled for detailed schemes to which section 27 applies provide as follows: B

(1) All land to which the provisions of section 27 and this schedule have been applied within an area scheduled or likely to be scheduled for a detailed scheme shall be pooled and the boundaries of all plots and holdings therein shall be expunged. C

(2) The detailed scheme shall provide for the equitable redistribution of plots or holdings in the land so pooled among the owner of plots or holdings pooled. D

The Third Schedule then provides for the pooling and redistribution of plots or holdings so pooled in areas effected by or subject to a detailed scheme. But before this is done as was done in this case, the provisions of section 27 must be complied with by the Minister, namely that he must by notice in the Gazette declare the application of the E provisions of the Third Schedule to the area in question and only then may such a detailed scheme make provision for the redistribution of land in accordance with the provisions of the Third Schedule. F

The question at this state is whether the provisions of section 27 were complied with before the provisions of the Third Schedule were applied to the Ngamiani area. While we were able to say from the evidence of the land Officials and Town Planning Officer that the Tanga Master Plan existed, there is no way by which we can be satisfied that the G provisions of Section 27 were complied with unless we see the relevant notice in the Government Gazette. We were referred to none, and none was shown to us. The only conclusion we could reach in the circumstances is

that the provisions of section 27 were not complied with before the provisions of the Third Schedule were applied to Ngamiani H area. Consequently the pooling and redistribution of the plots in the area including plots No. 1 and 15 was unlawful and therefore invalid. The main reason for the mandatory requirement to publish a notice of the intention to apply the provisions of the Third Schedule to an area so as to afford the inhabitants of the area an opportunity to I lodge their objections. In the present case we can see the respondent putting

up quite a spirited objection if there had been such a notice. She was not afforded such A a chance. The Tanga Master Plan was therefore drawn up and implemented in contravention of the Town and Country Planning Ordinance. Any actions purportedly taken under it were unlawful.

But we hasten to add by way of correcting the impression created by the learned judge B that a Master Plan or detailed scheme cannot come into effect unless it is published in the Gazette. Dealing with this aspects of the case he said:

> As aforesaid the coming into effect of a scheme or any planning scheme or even a mere C inception whereof is a master of law and must be published in the official gazette. This was not done. At any rate no relevant Government notices were quoted by P.W.1, P.W.2, P.W.3 and D.W.1 in this matter. As a matter of law it will therefore, be erroneous for anyone merely to D assume, no matter on whose word of mouth, that the said scheme did come into effect.

With respect, we think the learned judge mixed up the legal requirements. The E Ordinance does not provide anywhere that the coming into effect of a detailed scheme must be published in the Gazette. The legislation provides for two kinds of publication. The publication under section 27 of the Ordinance refers to the declaration by the Minister that he intends to apply the provisions of the Third Schedule to a particular F area. Secondly having done so and prepared a scheme in accordance with the Third Schedule, he must deposit a copy of such a scheme at a place thought appropriate and a notice of such deposit must then be published in the gazette. The purpose again is to enable members of the public and other affected authorities to know where the scheme G is and inspect it for the purpose of lodging objections if any. When all these steps have been taken and after the lapse of time given for lodging objections, the scheme is adopted and comes into effect. There is no requirement for publishing the fact in the gazette.

Before reverting to deal with the practical effects of our finding on the validity of the H Master Plan, we wish also to say briefly about the consequences of applying the provisions of the third schedule to an area. With regard to this the learned judge had this to say:

> Even if I were held to have erred on this point, I am of considered and firm view that the I formulation of a Master

> Plan or scheme for any urban areas does not, ipso facto, put an end or extinguish existing A property rights of any occupier and I so hold.

We think this considered and firm view is contrary to the provisions of the Third Schedule itself in so far as the application of the provisions of that schedule to a B particular area is necessary before any Master Plan or scheme can be prepared. As noted earlier the provisions of section 1 of the Third Schedule provide for the pooling and redistribution of all plots and holdings in the course of which all boundaries between such plots and holdings are expunged. We fail to see how existing property rights can C remain unaffected a situation where all the existing boundaries are expunged and the plots resurveyed for redistribution. The schedule itself foresaw this and provided the manner of redistributing to owners of plots and holdings so affected. See section 3 to 7 of the Schedule. D

We shall now revert to determine the rights of the parties in the light of our findings. The learned judge was more fortunate in that he found himself able to make a general order that the respondent "now be allowed to enjoy her right of occupancy under the frame work of the law of this country". In view of the real situation currently obtaining on the E ground, we fail to see how the respondent can go about enjoying her right of occupancy even under the framework of the law of this country. There is no plot for her to enjoy. Rightly or wrongly her old plot as well as the appellant's plot are no more. The respondent's plot No. 1 is not there. The real situation on the ground is therefore such F that there is nothing that the court can give her. Her plot is no longer on the survey maps of this country. The survey maps of this country have a plot No. 1 Block 38 which for very good reasons was given to the appellant. Since this plot has no relationship to the plot to which the respondent thinks she is entitled, her interests are simply competitive G and in the view of those who redistributed the plots, the appellant had a better claim by reason of her superior development on the property. If the granting of this plot to the appellant was irregular it would not become regular by simply giving it to the respondent H who in any case has an inferior claim to it.

In the circumstances and in view of the real situation on the ground, the sensible and practical thing to do is to leave undisturbed the 33 year Right of Occupancy granted to the appellant who should now proceed without any hindrance to effect the developmen

t I on the plot. The respondent should vacate the plot and take another

plot in the vicinity which the Land Office, is directed to offer and grant her as the law A requires them to do in such circumstances. To this extent we allow the appeal.

With regard to costs, counsel on both side agreed that in the circumstances of this case each party should bear her own costs both here and in the courts below. We agree and B therefore make no orders for costs both here and in the court below.

C Appeal allowed.

D

[zRPz]JACOB MWANGOKA v GURD AMON 1987 TLR 165 (HC)

Court High Court of Tanzania - Mbeya

Judge Mroso J

15 December, 1987

Flynote

Civil Practice and Procedure - Jurisdiction - Jurisdiction - Customary tort - Whether E justiciable in Primary Courts - S. 18(1)(i) of Magistrates Court Act, 1984 - Para 190, Part IV, First Schedule, Law of Persons, G.N. 279/1963.

Civil Practice and Procedure - Compensation - Whether expenses for educating a daughter who is made pregnant are recoverable.

Evidence - Pregnancy - Burden of proof that daughter not made pregnant by the accused - F Para 183 of Law of Persons GN 279/1963.

-Headnote

The appellant is the father of a girl who was allegedly made pregnant by the respondent. G The appellant had obtained judgement in his favour from the Primary Court which was successfully appealed against in the District Court on three grounds, to wit, that Primary Courts have no jurisdiction in tort cases; that expenses incurred by a parent in educating his child cannot be sued for in court if the child's education is terminated as a result of H pregnancy; that a parent has no cause of action against a man who fornicates with his daughter. The issue on appeal was whether the first appellate court erred in so holding.

Held: (i) Primary Courts have jurisdiction in all proceedings of a civil nature where the I law applicable is customary law;

1987 TLR p166

MROSO J

(ii) a customary tort is justiciable in Primary Courts; A

(iii) damages for expenses incurred in educating a daughter who terminates her studies on account of pregnancy are not awardable.

Case Information

Appeal dismissed. B

Cases referred to.

1. Mpapayu v Tusiliwa [1972] HCD n. 229
2. Halfani Saluum v Halfa Kondo [1969] HCD n 181. C

[zJDz]Judgment

Mroso, J.: This is an appeal against the judgement of the District Court of Mbeya. The appellant had obtained judgement in his favour from the Primary Court of Mabatini in Mbeya Municipality but the respondent successfully appealed to the District Court against that decision. The appellant has come to this court to ask that the decision of the D Primary Court be restored.

The appellant is the father of a girl called Sabeta who is now aged a little over eighteen years. This girl has a baby who was born almost a year ago (on 30/12/1986). Sabeta claims that the respondent who is now nearly twenty years of age is the father of her baby. At the time Sabeta was made pregnant - during the early months of 1986 - she E was in Form II at Mbeya Day

Secondary School. The respondent was in Form III at Sangu Secondary School. Because of the pregnancy Sabeta was discontinued from school. Her father - the appellant - filed a suit in the Primary Court claiming F compensation in the sum of Shs.20,000/= made up as follows:

School uniforms	Shs.	4,500.00
Fare to and from school		l7,200.00
School fees	G	840.00
Shoes		1,000.00
Exercise books		360.00
Soap		1,000.00
Pencils		100.00
Embarrassment	H	5,000.00
Total		20,000.00

The Primary Court found as a fact that it was the respondent who made the daughter of the appellant pregnant and therefore liable to pay the compensation as claimed. I

In reversing the decision of the Primary Court the first

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appellate court held that the claim was not adjudicable in the Primary Court because it A was under the law of tort and that Primary Courts have no jurisdiction to try tort cases. Secondly, that expenses incurred by a parent in educating his child cannot be sued for in court if the child's education is terminated as a result of a pregnancy. Thirdly, that in any B case a parent has no cause of action against a man who fornicates with his daughter, whether or not she is made pregnant.

The appellant has felt deeply aggrieved by the decision of the District Court. He argues with bitterness that if the law of tort does not recognise the right of a father to claim C damages against a man who fornicates with an unmarried daughter, Nyakyusa customary law recognizes such a claim as valid.

It is not quite clear to me what the District Court meant by saying that the appellant's claim was "under the law of tort" and that a primary court had no jurisdiction to entertain D it. We know that there are torts which come under customary law. Under Section 18 (I) (i) of the Magistrate's Courts Act, 1984 a Primary Court has jurisdiction in all proceedings of a civil nature where the law applicable is customary law. Indeed, under paragraph 190, Part IV, First Schedule of the Law of Persons, G.N. No. 279 of 1963 E (which was applied to Mbeya District by G. N. No. 436 of 1963) it is provided that a father is entitled to compensation of not less than shillings 100/= against a person who makes his daughter aged under twenty one years pregnant. If a parent has such F entitlement it means that he can sue such a person in a Primary Court.

In the case under discussion the appellant sued for, inter alia, what he termed "kunitia aibu", which would appear to come under paragraph 190 of the first schedule to the Law of Persons, cited above. Shillings 5,000/= was claimed under that item and the trial G Primary Court accepted and allowed it.

This court has on several occasions approved of the right of a father to sue for compensation in a situation similar to the present one. For example in the case of Mpapayu v Tusiliwa [1972] H.C.D. n. 229 Kwikima Ag. J as he then was said: H

The Declaration of Customary law allows fathers (to obtain) compensation from those who made their daughters pregnant.

The learned acting judge must have had in mind paragraph 190 of part IV of the First I Schedule to the Declaration of Customary Law, G.N. No. 279 of 1963.

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MROSO J

As for the claim to recovery of expenses incurred by the appellant in educating his A daughter Sabeta up to the time her education was terminated by the pregnancy, I would agree with the first appellate court that the appellant cannot recover. The expenses were not wasted, Sabeta got her education for as long as she remained in school and that education did not vanish merely because she became pregnant. The pregnancy may B have denied her the benefit of possible further education, but that could not justify the claim of shillings 15,000/=. As Said, J. as he then was, said in the case of Halfani Saluum v Halfa Kondo [1967] H.C.D n. 181 in which a parent claimed damages for C the expenses she incurred in educating her daughter for six years:

The claim does not disclose a cause of action as presented because it is the duty of a parent to educate his child. The expenses incurred for that purpose cannot be claimed for the child's D education being cut by intervening circumstances.

The question now in this case for consideration is whether it was the respondent who made the appellant's daughter pregnant. The girl Sabeta named the respondent as the E culprit. The respondent denied it. But was that enough for him to escape liability? Under customary law it was not enough.

Paragraph 193 of the Law of Persons, GN. No. 279 of 1963 provides as follows: F

Mwanamume ambaye ametajwa na mwanamke (asiyeolewa) kwamba ndiye baba wa mtoto hana budi kumkubali kwamba yeye ndiye baba wa mtoto ila akiweza kuhakikisha kwamba hakuzini na yule mwanamke. G

This paragraph puts the burden on the man to prove that he did not have carnal knowledge with the woman. The respondent did not discharge that burden. As it turned out the trial court believed that it was the respondent who made Sabeta pregnant. On the evidence it was open for the court to reach such a finding and I am not about to H disturb it.

In view of my earlier decision that a parent can claim and obtain judgement for compensation against a person who makes his dependent daughter under the age of 21 years pregnant, the remaining question now is whether the claim for Shs.5,000/= can be I allowed. The trial court allowed it. The respondent did not and

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has not before me suggested that the amount was excessive. I for my part do not A consider it either excessive or unreasonable. I therefore uphold the decision of the primary court regarding the award of shs. 5,000/= as compensation. Therefore, the appeal succeeds to that extent.

The amount which had been claimed in the whole suit was shs. 20,000/=. I have B allowed only a quarter of it (shs. 5,000/=). Corresponding to that only a quarter of the appellant's costs are allowed in this court and in the two courts below.

C Order accordingly.

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D

[zRPz]OMARI YUSUFU v RAHMA AHMED ABDULKADR 1987 TLR 169 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Omar JA, Mfalila Ag JJA and Mapigano Ag JJA

18 December 1987 E

Flynote

Land Law - Disposition - Of Right of Occupancy - Allegation disposition is tainted with fraud - Rights of bonafide purchaser for value.

Evidence - Disposition of Right of Occupancy - Allegation disposition is tainted with fraud - Standard of proof. F

-Headnote

The dispute between the parties is over a plot of land described as no. 75 block L, Mhoro Street, Dar es Salaam held on a Right of Occupancy. On 23/4/87 the High Court held and decreed that the plot was the property of the plaintiff (respondent) G Rahma. The defendant (appellant) Omari being yet dissatisfied appealed to the Court of Appeal.

Held: (i) A bonafide purchaser who is a stranger to the decree does not lose his title to H the property by the subsequent reversal or modification of the decree;

(ii) when the question whether someone has committed a crime is raised in civil proceedings that allegation need be established on a higher degree of probability than that which is required in ordinary civil cases. I

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MAPIGANO Ag JA, MFALILA Ag JA AND OMAR JA

Case Information

Appeal dismissed. A

[zJDz]Judgment

Mapigano and Mfalila, Ag. JJ.A. and Omar, J.A.: The dispute between the parties in this case is over a plot of land described as No. 75 Block L, Mhoro Street, Dar es Salaam, now held on a Right of Occupancy. On 23/4/87 the High Court at Dar es B Salaam (Bahati, J.) pronounced on the matter and held and decreed that the plot was the property of the plaintiff Rahma Ahmed Abdulkadri. The defendant Omari Yusufu has come to this Court on appeal.

To get an objective idea of this case one must recapitulate the past and I will, therefore, C start by stating the events of the last ten years in outline. In 1977 probate proceedings, Misc. Case No. 1 of 977, were instituted in the Primary Court at Kariakoo by one Mwajuma Yusufu against

Omari Yusufu the present appellant. On one hand Mwajuma Yusufu was claiming that the plot in question was part of the estate of her D deceased father one Yusufu Selemani, and on the other Omari Yusufu was claiming that the property had been transferred to him by the deceased during the deceased's lifetime. The Primary court found for Omari Yusufu, but Mwajuma Yusufu was dissatisfied and she appealed against the decision to the District Court of Ilala. The appeal, Civil Appeal E No. 17 of 1977, was dismissed on 4/4/81 and Mwajuma took a second appeal to the High Court at Dar es Salaam. The appeal, (PC) Civil Appeal No. 20 of 1981, succeeded and the judgement of Kimicha, J. who heard the appeal is dated 13/9/81.

Next, and that was about three years later, Omari Yusufu brought an appeal to this F Court from the decision of Kimicha, J. It was Civil Appeal No. 27 of 1984. In the meantime, in February, 1982 to be exact Mwajuma and her sister Fatuma had, at the instance of the High Court, procured a right of occupancy over the plot from the Land Office. Not only that. The two sisters had thereafter, on 22/9/82, sold the right of G occupancy to one Rukia Mzee Alli who had in turn sold the same to Rahma the present respondent on 15/10/82. There is no question but that both the transfers had been approved by the Land Office on 8/10/82 and 28/10/82, respectively, and that they took place before Omari Yusufu lodged a caveat in the Land Office in respect of the H property. The validity or otherwise of these dispositions is the centre-piece of the instant case.

Omari's appeal was allowed by this Court on 55/6/85. The decision of Kimicha, J. was set aside as a nullity and the record was sent back to the High Court for it to hear I Mwajuma's appeal afresh. But Mwajuma never pursued the appeal in the High Court. Probably

she thought that it was not worth her while in view of the dispositions that had taken A place.

The present case started on 13/11/85 and it is essentially a sequel or offshoot of the above litigation. After the delivery of the judgement of this Court in Civil Appeal No. 27 of 1984 Omari Yusufu apparently took certain legal steps to enforce the judgement of B the District Court. At his instance the court bailiff went to the house and stood on the plot and tried to evict the people who occupied it. He encountered stout resistance and the incident prompted Rahma to file a suit in the High Court. The principal relief claimed C in her plaint was a declaration that she was the sole holder of the Right of Occupancy over the plot. Omari contested the action, contending that there was a taint of fraud in the dispositions of the Right of Occupancy to Rukia Mzee Alli and to Rahma, and making reference to the other litigation.

Four issues were formulated and recorded by Bahati, J. viz: D

(1) Whether the two transfers of the property to Rukia and to Rahma are good in law.

(2) What is the effect of the judgement of the Court of Appeal in Civil Case No. 27 of 1984 nullifying the High Court judgement in (PC) Civil Appeal No. 20 E of 1981.

(3) Which of the parties is the legal owner of the suit premises.

(4) To what reliefs are the parties entitled.

Evidence was adduced by the appellant with a view to establishing that a notice of F appeal to this Court had been lodged by the appellant Omari and was lying in the High Court at the time

of Rukia's purchase of the property from the two sisters Mwajuma and Fatuma. The probity of Mr Ismail, the advocate who drafted the deed by which Rukia G transferred the unexpired portion of the term of the right of occupancy to the respondent Rahma, was called into question. Considerable efforts were made to show that Mr Ismail was fully aware at that point in time that the property was still being litigated upon, and that he purposely prejudiced the interests of the appellant Omari who H happened to be his former client. An attempt was also made to show that Rukia, the first purchaser, and the respondent, the second purchaser, were close relations.

All those allegations were strenuously denied by the witnesses for the respondent, and the substance of the respondent's case was that both Rukia and the respondent were I bona fide purchasers for

value. Mr Ismail was called as a witness and he related as to how and why and to what A extent he was retained by the parties. His account ran as follows:

Omari Yusuf once engaged his services, that was after Kimicha, J. had allowed Mwajuma's appeal in (PC) Civil Appeal No. 20 off 1981. Omari instructed him to B lodge an appeal against that decision on his behalf. He had to start by drawing an application for leave to appeal. He let one Mwajasho who was a pupil-advocate in his chambers to prepare the application and the requisite affidavit. On 7/5/82 he "blindly" swore to the statements set out in the affidavit and then had the application as well as a C notice of appeal presented to the High Court. He did not know the other party Mwajuma Yusufu. He did not pursue the application on account of a certain difference between him and Omari Yusufu. On or about 15/10/82 he drew the transfer deed. According to him he did not know then that there was any dispute over the property in D question. As pointed out above, subsequent to the delivery of the judgment of this Court in Civil Appeal No. 27 of 1984 Omari Yusufu tried to take possession of the property. The relatives of Rahma sought his assistance to resist Omari's action. He agreed and went to the plot and argued with the court bailiff and the police. Omari was E absent but he (Mr. Ismaili) recognized, upon perusal of the court warrant, that Omari whose name appeared in that warrant had once been his client. He nevertheless continued to carry out the instruction of his new client. He stated, in reply to a question, that he did not deem it improper to do so. F

As pointed out at the very start, the learned trial judge gave judgement in favour of the respondent. The judge dealt with all the four issues that had been framed. His answer to the first issue was in the affirmative. He found that by 22/9/82 when Mwajuma and Fatuma transferred the property to the first purchaser Rukia Mzee Alli there was neither G an appeal from the decision of Kimicha, J. in (PC) Civil Appeal No. 20 of 1981 dated 13/9/81 nor a notice of appeal in that respect. He held that in those circumstances the successful party in the High Court was free to dispose of the property as Mwajuma H did. The judge was not satisfied that there was any fraud in any of the two transfers.

On the effect of the judgment of this Court in Civil Appeal No. 27 of 1984 which nullified the judgement of Kimicha, J. in (PC) Civil Appeal No. 20 of 1981 Bahati,J. observed the obvious, to

wit, that the judgment was given after the property had actually I been sold to third parties and changed hands twice. He stated that

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since these dispositions were not tainted by fraud the judgment of this could not affect A the interests of those third parties and that the only recourse the appellant could well-advisedly have is to claim damages from the two sisters Mwajuma and Fatuma. In the event the judge proceeded to answer the third issue in the affirmative and to grant the B respondent the reliefs she was praying for.

This appeal rests on four grounds but some of the grounds can conveniently and properly be dealt with together. We have had the same representations as those in the High Court: Mr Rutashobya for the appellant Omari and Mr El-Maamry for the respondent Rahma. And in substance the arguments put forward before this court are C the same as those urged before the learned trial judge.

The first point taken is that the judge erred in holding that by the time the property was transferred to Rukia Mzee Alli no notice of appeal had been presented by the appellant D in respect of the decision of Kimicha, J. in (PC) Civil Appeal No. 20 of 1981. There is merit in this ground and I understood Mr. El-Maamry to concede the point. The fact of the matter is that a notice was lodged in the High Court at Dar es Salaam by Mr Ismail in May, 1982, and it appears at page 22 of the record of this appeal. That was E when Mr. Ismail was advocating for the appellant. The transfer of the property to Rukia, as already shown, took place on 22/9/82. All the same, for reasons that I am going to state presently the lodging of the notice mattered for little.

The second point taken is that the judge "misdirected himself when interpreting the legal F effect of the decision of this Court in Civil Appeal No. 27 of 1984 and the application of section 43 of the Evidence Act. 1967". Mr Rutashobya has argued that the decision of this Court in effect revived the judgment of the District Court and that since Mwajuma did not prosecute her appeal in the High Court after the nullification of the decision of G Kimicha, J. the position at law was that the appellant became the holder of the Right of Occupancy by reasons of his success in the District Court. I can see the force of this submission but in my view it all depends on whether Rukia was an innocent purchaser. If she was, then in my view this case comes almost four square within the principle stated H in Mulla Code of Civil Procedure 12th edition at page 268, which was approved by this Court in Mboweto v Kulala and Another [1981] TLR 335, a decision that was cited to us by Mr. El-Maamry, namely that a bone fide purchaser who is a stranger to the decree does not lose his title to the property by the subsequent reversal or I modification of the decree; in such a case the judgment - debtor

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whose property is sold is entitled only to the sale - proceeds of the property. The judge A did not say anything about the provisions of section 43 of the Evidence Act, 1967 which relate to the relevancy, conclusiveness and effect of certain final judgments including judgments in probate

jurisdiction. It was not necessary for him to do so. In my view there was no room for the application of that section in this case in-as-much as the B paramount issue was whether Rukia was an innocent purchaser. I would thus dismiss this ground.

This brings me to the other ground of appeal, namely that the judge erred in holding that the transfer of the property was good in law. This entails a consideration of the evidence C in regard to the charge of fraud which is the central question in this appeal.

We have been asked to note that Rukia sold the property shortly after she had purchased it and we have been asked to draw the interference that she was throughout aware that the property was still the subject-matter of litigation. On my part I regret I D cannot do so. I see no tangible evidence to justify such a finding. Indeed, Mr. Rutashobya has conceded before this Court as he did in the High Court that Rukia "might have been a victim of an intentional deceit perpetrated by Mwajuma and Fatuma".

We have also been asked to find that Rukia and Rahma were close relatives. Again I E regret I cannot see any cogent evidence that can lead me to reach that finding. In any event I cannot see how such a relationship would help the appellant's case, once it is conceded that Rukia was an innocent purchaser.

Mr. Rutashobya has contended that Rukia was obliged to carry out thorough F investigations into the vendor's title and suggested that Rukia should have approached the local Party leaders in that regard. The short answer is that since a registration system obtains in Dar es Salaam the extent of investigation of title by a purchaser is limited. There is no need to undertake a historical investigation into the origins of the vendor's G title beyond the inspection of the register at the Land Office, because the purchaser is justified at law in the assumption that what the register contains is true and is all that there is about the property. As the learned authors Meggary and Wade observe in their text-book "The Law of Real Property", that is one of the attraction of registration of H title.

The conduct of Mr Ismail was again the subject of heated arguments. Mr. Rutashobya has lashed at Mr. Ismail, describing him as "a party to the clandestine transfer of the property". Mr Rutashobya has invited this Court to endorse that description. Once I again I cannot. As we have already seen, Mr. Ismail took the witness-

box in the High Court and explained his involvement in this matter. It was a plausible A account and the learned judge was entitled to accept it as he implicitly did. Even if it were true that Mr Ismail's conduct was flawed I do not see how a judge would proceed to impute Mr. Ismail's breach to Rahma. B

As shown, the appellant came to court seeking to impunge the transfers of the property alleging criminal conduct i.e. fraud on the parts of the vendors, the purchasers and Mr. Ismail. I think it is now established that when the question whether someone has committed a crime is raised in civil proceedings that allegation need be established on a C higher degree of probability than that which is required in ordinary civil cases, the logic and rationality of that rule being that the stigma that attaches to an affirmative finding of fraud justifies the imposition of a strict standard of proof, though as Rupert Cross cautions and illustrates in his text-book on Evidence at page

124 the application of that D rule is not always commodious. In my assessment and as demonstrated above, the evidence that was led against the purchasers and Mr. Ismail fell short of the required standard. I would accordingly dismiss the third ground.
The last ground is that the learned judge erred when he held that the property belongs to E the respondent. For the reasons I have stated with regard to the other grounds I would dismiss this ground as well.
In the final event I would dismiss this appeal with costs to the respondent. As the other Members of the Court agree it is so ordered.
F Appeal dismissed.
1987 TLR p175
G
[zRPz]HANS NAGORSEN v BP TANZANIA LIMITED 1987 TLR 175 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Kyando J

20 December, 1988 H
Flynote
Civil Practice and Procedure - Suing - Who may sue - Suing on behalf - Whether a letter authorising a person to settle a claim authorises such person to file a suit. I
Civil Practice and Procedure - Plaint - Plaint avers that the
1987 TLR p176
KYANDO J
driver was "authorised to drive a vehicle" - Whether the same as "driving in the course of A one's employment" - Whether plaint discloses cause of action.
-Headnote
The plaintiff's claim arises from an accident caused by the defendant or its agent duly B authorised to drive the defendant's air gas fuel tanker, whose driver, while at the Dar es Salaam International Airport, negligently and carelessly drove the said tanker and caused an accident that resulted in extensive damages to the plaintiff's Cessna Air Craft. Full facts appear in the judgment. C
Held: (i) Being "authorised to drive a vehicle" and "driving in the course of one's employment" are not necessarily the same. A person may be authorised to drive, but use that authority for frolics of his own;

(ii) the element of a driver being in the course of his employment is the D foundation for his employer's liability and it must be specifically averred for the plaint to disclose a cause of action against the employer;

(iii) authorisation to settle a claim is not the same as authorisation to appear, apply or do any act in or to any court within the meaning of those words used in O. III E r.1 CPC. The plaintiff's institution of the present suit was done without authority or power.

Case Information
Order accordingly. F
[zJDz]Judgment
Kyando, J.: At the commencement of the hearing of this case Mr. Raithatha, learned counsel for the defendant, took several points of objection to the plaint presented by the plaintiff. The first point relates to the title of the plaintiff; at the head of the plaint the plaintiff is shown to be "HANS NAGORSEN (SUING AS G ATTORNEY) . . . . . PLAINTIFF" and in para 1 it is stated in part:

The plaintiff is an adult natural person, and duly appointed Attorney for Mr. Karl Wepfler currently not available in Tanzania, with power to represent the said Karl Wapfler in this suit. H

Mr Raithatha contended that from the above, it is clear that Hans Nagrosen is an agent and if that is the case he has no cause of action against the defendant for an agent cannot I have a cause of action of his own against a party. He contended that in this case only Karl
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KYANDO J
Wapfler himself could have had a cause of action against the defendant. A
The second point Mr. Raithatha raised was that the power of attorney given to Hans Nagorsen by Karl Wapfler, a copy of which has been annexed to the plaint as Annexure "A", duly authorises Mr. Nargosen to "settle" the claim; it does not authorise him to file a B suit on Wapfler's behalf. He (Mr Raithatha) therefore contended that Mr. Nagorsen has no authority to file this suit against the defendant.
Thirdly, Mr Raithatha contended that the Plaint has been signed by Mr. Maira. It has C not been signed by the agent or by the plaintiff himself, Mr. Raithatha argued that this offends the provisions of O.VI r. 14 of the C.P.C. He contended that even Nagorsen could not have signed it because the power of attorney he holds only authorises him to settle the claims; it does not authorise him to sign the plaint. D
Fourthly, Mr. Raithatha contended that under the "reliefs" prayed for the plaintiff has prayed for interest before judgment at 32%. Mr. Raithatha argued that where interest before judgment is prayed there must be in the body of the Plaint a cause of action upon E which the interest is based. He contended that in the instant case the plaintiff states no reasons why he is seeking the exorbitant interest of 32%. He said that if this rate of interest is the commercial rate then the plaint should have averred existence of the custom of this kind of interest. F
Finally, Mr. Raithatha submitted that in para 4 of the plaint negligence is alleged against the driver of the defendant. He said the defendant is therefore being sued on the basis of vicarious liability. However, he contended, there is no averment in the plaint that the driver caused the accident while in the course of his employment. He submitted that G failure to plead this makes the plaint fail to disclose a cause of action against the defendant.
For all the above points Mr. Raithatha prayed that the plaint be rejected, with costs. He H said he was not praying that it be dismissed, but that it be rejected.

In reply Mr. Maira for the plaintiff submitted, first generally, that Mr. Raithatha's submissions have no merits whatsoever; he said they are an attempt at "hair splitting." He then argued that Mr. Nagorsen has authority to conduct the case on behalf of the plaintiff in terms of O.III C.P.C. He stated that he (Nargosen) has disclosed that he is I acting as an attorney and has disclosed his principal. He said he cannot then see how he can be barred from suing as an
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KYANDO J
attorney. He said Annexure "A" to the plaint authorises him (Nagorsen) to pursue this A matter and it is quite in order for him to file this suit on behalf of Mr. Wapfler.
Concerning the signing of the plaint Mr. Maira referred also to O.VII r.14 CPC. and argued that the provisions in that rule do not exclude an advocate or agent from signing pleadings. B
As regards failure to aver that the accident was caused by the driver in the cause of his employment with the defendant, Mr. Maira contended that this point is hollow as the cause of action arises out of an accident caused by the motor vehicle belonging to the defendant, for the benefit of the defendant. He contended that this has not been denied C in the written Statement of Defence and that the only denial in the Written Statement of Defence is that the defendant was negligent. He submitted that whether the driver was in the course of his employment with the defendant at the time he caused the accident need not be averred in the plaint but will be a matter to be proved by evidence D during the trial. He contended further that there has been no plea made by the defendant that the driver was not acting in the course of his employment when he caused the accident. He submitted that the words "duly authorised to drive the defendant's Air E gas fuel tanker" (which caused the accident) in para 4 of the plaint constitute a plea that the driver was acting int he course of his employment.
Finally, Mr. Maira submitted that in the unlikely event of my accepting Mr. Raithatha's contentions or submissions, I should hold that all the defects in the plaint are curable. He F said such defects do not go to the merits of the case, they do not destroy the facts of the case. He said under Section 95 CPC. therefore I should dispense with the technical defects so that the ends of justice are met. He also submitted that under O.VII CPC, as amended, a defective Plaint cannot be rejected but it can be ordered to be amended. He prayed that the objections raised by Mr. Raithata be overruled and the case be G proceeded with to hearing.
I will start with the contention that the Plaint should have averred that the driver caused the accident while in the course of the defendant's employment. The relevant paragraph is paragraph 4 in the Plaint, wherein it is alleged: H

The Plaintiff's claim arises from an accident caused by the defendant and/or its agent duly authorised to drive the defendant's Air gas fuel tanker, who while at the Dar es Salaam I International Airport negligently and/or carelessly drove the
1987 TLR p179
KYANDO J

said tanker and caused an accident that resulted into extensive damages of the said Cessna A Air Craft thus grounding it from the 15th day off June, 1986, up to 14th January, 1987 when it finally got repaired.

It is clear from the above that no plea that the driver caused the accident while in the B course of his employment with the defendant has been made. The words "duly authorised to drive the defendant's Air gas fuel tanker" do not necessarily convey the meaning that the driver was in the course of his employment as Mr. Maira contended, C for the driver could have had a general authority to drive the tanker but it cannot be concluded from that fact alone that he was driving in the course of his employment when he got involved in the accident. Being authorised to drive a vehicle and driving in the course of one's employment are not necessarily the same. A person may be authorised D to drive, but use that authority for frolics of his own. I rule that the plea that the driver was in the course of his employment has not been made in the plaint.

Was it necessary to make the averment in the plaint that the driver caused the accident E while in the course of his employment with the defendant? As indicated already, Mr. Raithatha says it was necessary and failure to aver renders the plaint fail to disclose a cause of action against the defendant. Mr. Maira says it was not necessary as this element could be disclosed by evidence during trial. Unfortunately neither counsel cited F any authority to support their respective arguments. In the case of Fakurudin Ebrahim v The Bank of Tanzania [1978] LRT (Parts III & IV), n. 45 which was for action involving vicarious liability for the negligent driving of an employee, the driver who caused the accident was not joined as a party. In the District Court the defendant successfully contended that the Plaint was bad for non-joinder. On appeal, after G discussing and reaching the conclusion that it was not necessary to join the driver as a party, the late Biron J., observed:

> In my view, all that is necessary to set out in a plaint is the averment which if not traversed H would entitle the plaintiff to judgment. And in a case of this nature all that is necessary to set out to, that vehicle caused the damage to the plaintiff's vehicle belonged to the defendant, that at the material time it was being driven by the defendant's servant or agent in the course of his I employment, and that the accident ..... was caused by the negligence of the driver (underlining supplied).

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KYANDO J

From the above passage in the Judgment of the late Biron, J., it is clear that it is A necessary for the plaint to aver that the driver or agent was in the course of his employment when he drove the vehicle which caused damage. In my view the element of a driver being in the course of his employment is the foundation for his employer's liability and it must be specifically averred for the plaint to disclose a cause of action B against him, i.e. the employer. As indicated already, in this case this element was not averred and the plaint as rightly submitted by Mr. Raithatha, does not disclose a cause of action against the defendant.

I will next consider the submission about the title of the plaintiff. It is shown at the top of C the plaint that Nagorsen is suing as an attorney. The letter authorising him to so do is said to be annexure "A" of the plaint. It says:

D Mr. Kar Wipfler,
c/o Transair
P.O. Box 40154

Dar es Salaam.
E 23/3/1987
M/S Robins Davies
(Africa) Ltd.,
P.O. Box 43675,
Nairobi
KENYA F
Dear Sirs,
Re: CONFIRMATION OF AUTHORITY FOR MR. H. NAGORSEN G
Reference is made to your letter B8125/DSR of 20th February, 1987. I herewith confirm, that Mr. Hans Nagorsen, P.O. Box 9302 Dar es Salaam is acting on my behalf, and is authorised to settle the claim of the damaged air craft. H
Since I am travelling a lot, I request you, to address all further correspondence to Mr. Nagorsen.
Yours faithfully,
(Sgd.) I
KARL WIPFLER.
1987 TLR p181
KYANDO J
As indicated earlier on above, Mr. Raithatha submitted that by the above letter, Mr. A Nagorsen has been authorised only to "settle the claim", and not to act as an authorised agent in terms of the provisions of Order III r. 1 of the Civil Procedure Code.
O.III r.1 CPC. provides: B

(1)Any appearance, application or act in or to any court, required or authorised to be made or done by a party in any such court, may, except where otherwise expressly provided by any law C for the time being in force, be made or done by the party in person or by his recognised agent or by an advocate duly appointed to act on his behalf. (Emphasis supplied).

I would readily agree that authorisation to settle a claim is not the same as authorisation D to appear, apply or do any act in or to any court within the meaning of those words as used in O.III r.1 CPC. As I see it, Mr. Nagorsen was authorised to negotiate settlements out of court, of the claim. He certainly was not, by the above letter, authorised to institute a suit or suits. The institution of the present suit by him was done without authority or power therefore. E
Then there is the question of signing of the Plaint, O.VI r.14 CPC. provides:

14 Every pleading shall be signed by the party and his advocate (if any) provided that where a party pleading is, by reason of absence or for other good cause, unable to sign the pleading, it F may be signed by any person duly authorised by him to sign or to sue or defend his behalf. (Emphasis supplied).

The plaint in this matter has been signed by Mr. Maira, the plaintiff's advocate. He has G signed the verification also. While, in terms of the provisions of O.VI r.14 CPC. above, he could have signed with the plaintiff, he cannot certainly sign a plaint alone, on behalf of the plaintiff, as an advocate. His having signed the plaint in this case renders it (the plaint) therefore defective. H

Then there is the point whether an agent can have a cause of action against a party on behalf of his principal. O.VI r.14 CPC which I have reproduced above says a pleading, where a party is unable to sign it, may be signed by any person duly authorised by him to sign or to sue or defend on his behalf. The reference to suing in this rule shows that an I agent can be authorised to sue on

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KYANDO J

behalf of his principal. Where there is such authority therefore there is no reason why he A should not institute a suit on behalf of his principal and it cannot be said by so suing he cannot have a cause of action against the defendant. However, in this case, as already held above, there is no power conferred upon Nagorsen to sue as such. So he filed the suit as agent without having been given power by his principal to do so and that was B wrong, and makes the plaint defective.

Finally concerning the interest of 32% sought in the plaint, clearly the plaintiff should show if such scale of interest is authorised by commercial custom or not. He has not C done so and this also renders the plaint defective.

The above are all the points raised by mr. Raithatha and I have found that they are all valid points. I uphold his objections to the plaint on the basis of these points. The question is what is the result then? Mr. Raithatha as already shown, submitted that I D reject the plaint, with costs. Mr. Maira, on the other hand, submitted that I merely direct that the plaint be amended and invoked Section 95 of Civil Procedure Code.

Concerning the objection on the ground that the plaint does not disclose a cause of action against the defendant because it does not aver that the driver was in the course of E his employment when he was involved in the accident the proviso to O.VII r.11(a) CPC., as amended, (or rejection of plaints) provides that if the court is satisfied that if the plaintiff is permitted to amend the plaint, the plaint will disclose a cause of action it (the court) may allow the plaintiff to amend the plaint subject to such condition as to F costs or otherwise as the court may deem fit to impose.

In the instant case, I am satisfied that if the averment that the driver was driving in the course of his employment is made in the plaint, it (the plaint) will disclose a cause of G action against the defendant. Accordingly, I will order that the plaintiff should amend the plaint to include the element I have just referred to above.

As regards the objections on the ground that Mr. Nagorsen as agent cannot have a cause of action against the defendant and that he had no power of attorney to sue but H only to settle, Mulla in Code of Civil Procedure, 13th Edition Vol.I, says at p.669:-

> ...It has been held that an objection that the institution of the suit is not within the authority conferred by the power of attorney should be taken at the earliest possible opportunity and I before issues are framed and that even when an objection

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KYANDO J

is so taken and sustained, the court should not reject the plaint but given an opportunity to the A parties to rectify the defect. (Underlining supplied).

The above is the position under the Indian Code of Civil Procedure. As the provisions B to which the above passage relates are similar to those in our CPC. I am of the view that the same is the position in this country also. So I will not order a rejection of the plaint. Instead I will order the plaintiff to rectify the defects to which the objections I have mentioned above relate.

Concerning the question of signing and that of the rate of interest, those also are defects C which the plaintiff should rectify; I will not order that the plaint be rejected because of them either.

In the final result then, the plaint is to be amended so that the defects pointed out herein are rectified. The defendant is awarded costs for successfully raising his objections to the plaint. D

It is so ordered.

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E

[zRPz]YASSIN MAULID KIPANTA AND TWO OTHERS v REPUBLIC 1987 TLR 183 (HC)

Court High Court of Tanzania - Tabora

Judge Chipeta J

23 December, 1987 F

Flynote

Criminal Law - Evidence - Probative value of evidence based solely on identification - Identification by single witness.

Criminal Law - Sentencing - Assessment of sentence - Factors to be considered. G

-Headnote

The three appellants were charged with and convicted of being in possession of instruments with intent to commit a felony c/s 298(c) of the Penal Code. They were, H each, sentenced to two years imprisonment. They appealed against their convictions and sentences.

Held: (i) Where evidence against the accused person is solely that of identification, such I evidence must be absolutely water tight to justify a conviction;

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CHIPETA J

(ii) although the prevalence of an offence is one of the factors to be taken into A account in assessing sentence, it is not the only factor and thus has to be considered in the light of other factors.

Case Information

Conviction upheld but sentence commuted. B

Cases referred to:

1. R. v Eria Sebwato [1960)] EA 174.
2. Abdallah Bin Wendo v R. [1953] 20 EACA 166.

3. Waziri Amani v R. [1980] TLR 250.

4. Silvanus Leonard Nguruwe v R. [1981] TLR 66 pg. 68. C

[zJDz]Judgment

Chipeta, J.: The three appellants, namely, Yassin Maulidi Kipanta, Nasibu Hussein Bubu and Ali Haruna Kalonda were jointly charged before Tabora District Court with the offence of being in possession of instruments with intent to commit a felony c/s D 298(c) of the Penal Code. They were all convicted as charged and each of them was sentenced to two years imprisonment. Dissatisfied, they now appeal against their convictions and sentences.

The Prosecution's evidence was that during the night of 2nd March 1987, one Simon Birafumba (P.W.1), who is a watchman, was on duty at Mabama C.C.M. office. At or E about 8.00 p.m. that night, while standing at a corner of the building, P.W.1 saw three people whom he identified to be the three appellants in this appeal. P.W.1 observed that the first appellant had a panga and an iron bar, the second appellant had three F spears, while the third appellant had two spears. As the appellants approached the building, one of them asked, "Mlinzi yuko wapi". Thereupon, P.W.1 entered the office and saw the appellants touching the door and windows of the building, and so P.W.1 raised an alarm.

The alarm was answered by the ward secretary (P.W.2) who immediately proceeded to G the scene accompanied by a group of villagers among whom were militiamen.

On arrival at the office, which is only 50 paces from P.W.2's house, P.W.2 and his group saw the second appellant running away from the scene. The second appellant H was then chased and apprehended with his three spears. On being interrogated, the second appellant said that he had been with the first and third appellants.

The villagers then started looking for the two appellants. They later located the third appellant hiding under a tree near the C.C.M. office, and the first appellant was in a I house which is not his own. Both of them were found in possession of weapons as described by

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CHIPETA J

P.W.1. They were then accordingly charged with this offence. A

In his defence, the first appellant said that on the day in question he was drunk and that he was arrested for no reason in his room at about 9.00 a.m. Similarly, the second appellant said that on the day in question he was very drunk and was arrested in his B room at about 8.00 p.m. for no reason. The third appellant said that he was arrested while on his way home for no reason, and that he too was drunk.

The learned trial senior district magistrate believed the prosecution witnesses as truthful, and after carefully considering the circumstances in which P.W.1 saw the appellants, the C learned magistrate was satisfied that P.W.1 had correctly identified the appellants. He accordingly convicted the appellants as charged.

It is now well settled that where the evidence against an accused person is solely that of identification such evidence must be absolutely watertight to justify a conviction. (see D R. v Eria Sebwato, [1960] E.A. 174); and where the evidence of identification is that of a single witness, there is need to test such evidence with the greatest care; what is needed is other

evidence, direct or circumstantial, pointing to the accused's guilt from which a court can reasonably conclude that the evidence of identification, although based E on the testimony of a single witness, can safely be accepted as free from the possibility of error. (See Abdallah Bin Wendo v R. (1953) 20 E.A.C.A. 166). In the words of the Court of Appeal of Tanzania in the case of Waziri Amani v Republic [1980] TLR 250, at pages 251-252: F

... evidence of visual identification, as Courts of in East Africa and England have warned in a number of cases, is of the weakest kind and most unreliable. It follows, therefore that no court G should act on evidence of visual identification unless all possibilities of mistaken identity are eliminated and the court is fully satisfied that the evidence before it is absolutely watertight.

In the instant case, there was moonlight on the night in question; P.W.1 and the H appellants live in the same village; P.W.1 saw the appellants from a distance of only twelve paces; and the circumstances in which P.W.1 saw the culprits cannot be said to have been calculated to make identification difficult. Indeed none of the appellants I suggested any reason why any of the prosecution witnesses would wish to frame them.

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CHIPETA J

The evidence of identification does not stand alone. It is supported by other evidence; A the second appellant was arrested while running away from the scene while the third appellant was arrested as he hid under a tree; and at the time of their arrest that same night, the appellants were found in possession of weapons described by P.W.1. Besides, the second appellant, who was the first to be arrested, named the first and third B appellants to have been with him.

On the basis of the foregoing, I respectfully agree with the learned state attorney that the appellants were properly and correctly identified.

The next question for consideration is whether these facts constitute the offence charged. C If a man goes armed to a place where he has no lawful business at an odd hour and, upon hearing an alarm, takes to his heels or goes into hiding and fails to give a reasonable explanation for his visit to the place, the reasonable and inescapable inference D must be that such person is in such place for the purpose of committing a felony.

In the present case, the circumstances in which the appellant were seen at the scene, the hour of the night, their conduct at the scene and the nature of their weapons all lead to an irresistible inference that they were there with the intent of committing a felony and that E their weapons were instruments of housebreaking.

For these reasons, I am of the view that the conviction were fully justified.

I now turn to the sentences. In sentencing the appellants, the learned magistrate took into consideration the fact that the offenses of breaking are very common in his District F and so he felt that the appellants deserved stiff sentences. With unfeigned respect, the prevalence of an offence is one of the factors to be taken into consideration in assessing sentences. But it is not the only consideration. It must be taken into consideration along G with other factors. In the words of the Court of Appeal of Tanzania in the case of Silvanus Leonard Nguruwe v Republic, [1981] TLR 66 at page 68:

Prevalence of an offence is indeed a factor which a trial court should always take into account H when assessing a proper sentence to impose in any particular case; but it would be contrary to principle to consider this fact either as the predominant or the only factor that must guide the court in its consideration of sentence. I

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In the instant case, the appellants were first offenders and youths aged between 18 years A and 27 years; and considering their conduct, it seems to me that they acted more foolishly that criminally. The nature of the offence itself is aimed at preventing the omission of more serious crimes.

For these reasons, I am of the view that the sentences were manifestly excessive. A B sentence of nine months imprisonment in my opinion, would have met the justice of the case. Since the appellants have already served eight months of the sentences, the sentence of two years imprisonment imposed on each of them is hereby set aside and C substituted therefore is such sentence as will result in each of the appellant's immediate release from custody unless otherwise lawfully held.

On fine, save for the variation of the sentences, the appellant's appeal is otherwise dismissed. D

Appeal dismissed.

1987 TLR p187

E

[zRPz]THABIT WILLA ISMAIL v REPUBLIC 1987 TLR 187 (HC)

Court High Court of Tanzania - Mtwara

Judge Kyando J

December, 1987

Flynote

Criminal Practice and Procedure - Witnesses - When accused has a right to have F witnesses who have already testified to be recalled - Requirement that accused be informed about this right - S.214(2)(a) Criminal Procedure Act, 1985.

-Headnote

This case was heard by two magistrates. The first heard the evidence of two witnesses G out of the total number of three. When the second magistrate took over he did not inform the accused of his right to have the witnesses who had already testified to be recalled and reheard. He proceeded with the case convicted and sentenced the accused. H On appeal the procedure adopted by the trial court was attacked.

Held: After complying with s.214(2)(a) of the C.P.A. the learned resident magistrate who convicted the appellant should have recorded his answer - whether he wished the I witnesses who had testified before the first resident magistrate to be recalled or not.

1987 TLR p188

KYANDO J

Case Information
Appeal allowed. A
Case referred to:
Katuale & Anor. v R. [1971] HCD n.46
Boaz for respondent B
[zJDz]Judgment
Kyando, J.: This case was heard by two magistrates. A total of three witnesses testified for the prosecution. The first Magistrate who heard the case, B.M. Luanda, R.M., heard the evidence of two of these witnesses. Then G.M. Nkwera took over. On taking C over and before he continued with the hearing of the case he made the following note:

Ct! 8. 214 of Cr.P.A. complied with
Sgd. G.M. Nkwera, RM D
23.1.86.

S.214 of the CPA provides as follows:

214 - (1) Where any Magistrate, after having heard and recorded the whole or any part of the E evidence in any trial or conducted in whole or in part any committal proceedings is for any reason unable to complete the trial or committal proceedings within a reasonable time, another Magistrate who has and who exercises jurisdiction may take over and continue the F trial or committal proceedings as the case may be and the magistrate so taking over may act on the evidence or proceedings recorded by his predecessor and, may in the case of a trial re-summon the witnesses and recommence the trial or the committal or otherwise subject to subsection (2). G

(2) Whenever the provisions of subsection (1) apply -

(a) in any trial the accused may, when such other magistrate commences his proceedings, demand that the witnesses or any of them be re-summoned and reheard H and shall be informed of such right by the second magistrate when he commences his proceedings.

(b) the high Court may, whether there be an appeal or not, set aside any conviction passed I on evidence not wholly recorded by the Magistrate before the

conviction was had, if it is of the opinion that the accused has been materially A prejudiced thereby and may order a new trial.

At the commencement of the hearing of the appellant's appeal in this case, Mr. Boaz, B learned State Attorney representing the Republic, made the following submissions to this Court:

(1) Although the Resident Magistrate says at page 8 of the typed proceedings that s.214 CPA was complied with, there is no record of the answer given by the accused. C

(2) The evidence given by the witnesses who had testified before the first Magistrate was very crucial to the case. It is my view that they should have been re-called to testify before the convicting Magistrate so that he could have the opportunity of seeing them D testify. I believe that the appellant was prejudiced by the failure of the Resident Magistrate to re-call

these witnesses. I was wondering whether this court should not invoke the provisions of s. 214(2)(b) of the CPA in this case therefore. E

The learned State Attorney also submitted that because the appellant has served a considerable part of his term in jail I should consider not ordering a re-trial. F

He referred me to the case of Katuale & Anor. v R., [1971] HCD n. 46 in which Kisanga Ag. J. (as he then was) held, inter alia that the fact that an appellant has already been in custody for some time is a consideration to be taken into account in deciding whether or not to order re-trial, but this is not the only consideration. The G decision should depend on consideration of all the facts and circumstances of each particular case. In the instant case Mr. Boaz submitted that the appellant was convicted and sent to jail on 3.3.86. He has been in prison for over a year now. He suggested that this is a long enough period the appellant has served and a re-trial under the circumstances should not be ordered. H

With respects I agree with Mr. Boaz's submissions. I am of the view that after complying with S. 214 (2) (a) of the CPA, the learned Resident Magistrate who convicted the appellant should have recorded appellant's answer - whether he wished I the witnesses who had testified before the first Magistrate to be re-called or not. I think this follows naturally from the provisions of the law that require

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that the accused "shall be informed of such right by the second magistrate" as they are in A s. 214(2)(a) of the CPA. As the position is now, we do not know what he (the appellant) said after Resident Magistrate complied with S.214 of the CPA as he states in the proceedings.

I also agree that the appellant was materially prejudiced as PW1 and PW2 who did not B testify before the second Magistrate were the crucial witnesses for the prosecution. Finally, I agree with Mr. Boaz that an order for a retrial would be inappropriate in this case.

Accordingly I allow the appeal, quash the conviction of the appellant and set aside the C sentence imposed on him. I order that he be released from prison immediately unless he is being held there for another lawful cause.

D Appeal allowed.

1987 TLR p190

E

[zRPz]REPUBLIC v MSUSA s/o ALLY 1987 TLR 190 (HC)

Court High Court of Tanzania - Mtwara
Judge Kazimoto J

December, 1987

Flynote

Criminal law - Pleas - Plea of autrefois convict - Accused convicted of assault causing F actual bodily harm - After conviction complainant died - Accused then charged with murder - Whether plea of autrefois convict available.

-Headnote

The accused was charged with and convicted on his own plea of guilty of assault causing G actual bodily harm contrary to Section 241 of the Penal Code. After his conviction and sentence the complainant died. The accused was then charged with murder of the complainant. The trial magistrate queried whether the conviction and sentence of the accused which he had entered against the accused could still stand in view of the fact that the accused was facing a charge of murder. H

Held: (i) The conviction entered against the accused under section 241 of the Penal Code prior to the death of the complainant was proper and stood valid, notwithstanding the subsequent charge of murder; I

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KAZIMOTO J

(ii) that although the facts which gave rise to the conviction of assault causing A actual bodily harm would appear to be the same in the murder case, the offenses are distinct and separate, and hence the accused could not plead autrefois convict to the charge of murder.

Case Information

Order accordingly. B

Cases referred to.

1. R v Morris [1967] 10 Cox Criminal Cases 480
2. R v Miles [1890] 24 QBD 423
3. R v Thomas [1949] 2 All ER 662 C
4. R v Absolom s/o Mohanga and Wilson s/o Wasike [1957 EA 660

[zJDz]Judgment

Kazimoto, J.: On 27/12/86 the accused was brought before Tunduru District court D and according to the record the accused was not required to plead to the facts. The record does not show with what offence he was charged. However on 9/1/87 the accused was charged with assault causing actual bodily harm c/s 241 of the Penal Code. He pleaded guilty and upon admitting the facts he was convicted on his own plea and E sentenced to 18 months imprisonment. After his conviction and sentence the complainant died. The accused was then charged with murder of the complainant. The learned Senior District Magistrate has queried whether the conviction and sentence of the accused which he has entered against the accused can still stand in view of the fact that F the accused is now charged with murder. Section 137 of the Criminal Procedure Act 1985 provides:

A person who has once been tried by a Court of competent jurisdiction for an offence and G convicted or acquitted of such offence shall, while such conviction or acquittal has not been reversed or set aside, not be liable to be tried again on the same facts for the same offence.

and Section 138 of the Criminal Procedure Act 1985 also states as follows: H

A person convicted or acquitted of any offence may be afterwards tried for any other offence I with which he might have been charged on the former trial under subsection (1) of Section 134.

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KAZIMOTO J

The learned State Attorney has argued that the provision of section 137 of the Criminal A Procedure Act 1985 applies only when the facts in the second charge are substantially the same as the facts in the former charge. He submits that as the accused was convicted of assault a plea of autrefois convict cannot be raised to a charge of murder as these are different offences, although they may have arisen out of the same facts. He B relied on the cases of R v Morris [1967] 10 Cox Criminal Cases P 480. R v Miles [1890] 24 QBD 423 and R v Thomas [1949] 2 ALL ER 662. He submits that the principles in these cases apply equally to section 137 of the Criminal Procedure Act 1985 and that the murder charge has nothing to do with the offence of assault causing C actual bodily harm.

In R v Thomas [1949]2 ALL ER 662 the accused inflicted serious wounds on his wife with a knife and for that offence he was charged and convicted of felonious wounding with intent to murder. At the time of his conviction his wife was still being hospitalised D but she died later from the wounds she received from the accused. The accused was subsquently charged with murder. the accused raised the plea of autrefois convict. Humphreys, J. after considering R v Morris (supra) and R v Miles (supra) held that:

Although, to prove murder, it was assential to prove the assault adjudicated on at the time of E the conviction of felonious wounding, that conviction could not be pleaded in bar to the indictment for murder because the offence of murder only arose when the appellant's wife died. F

The decision in R v Thomas (supra) was followed by the High Court of Kenya in R v Absolom s/o Mohanga and Wilson s/o Wasike [1957] EA 660. In this case the respondents were policemen. It was alleged that they took two women from the prison G cells and had carnal knowledge with them without their consent. They were charged with conduct to the prejudice of good order and discipline under s.41 (44) of the Police Force Ordinance 1948. The charge was heard in accordance with the orderly room procedure and they were convicted and sentenced. Later they were charged with rape H and they raised the pleas of autrefois convict. The trial court upheld the defence and on appeal by the Crown Rudd, Ag. C.J.:

The offence which was the subject of the orderly room charge was certainly based on the I same facts but it was not the offence of rape, for the plea in bar to be effectual, the previous

conviction must be for the same, or at least, practically the same offence as that A subsequently charged.

These are great persuasive authorities and they have stated the principles upon which a plea of autrefois convict can be pleaded successfully. In the present case the facts B which gave rise to the conviction of assault would appear to be the same in the murder case but the offences are distinct and separate. Applying the principles in R v Morris, R v Miles, R v Thomas and R v Absolom s/o Mohanga and Wilson s/o Wasike (supra) I hold that the accused in this case cannot rely on the plea of autrefois convict to the C charge of murder. The conviction entered against the accused under section 241 of the Penal Code prior to the death of the complainant, and not withstanding the subsequent charge of murder is proper and still stands as valid in law.

D Order accordingly.

1987 TLR p193

E

[zRPz]SHIKU SALEHE v REPUBLIC 1987 TLR 193 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Chipeta J

December, 1987 F

Flynote

Criminal Law - Rape - Conviction based solely on visual identification -Uncorroborated testimony - Whether can ground conviction. G

Evidence - Rape - Conviction based on uncorroborated testimony of the victim of rape - Whether conviction may stand.

-Headnote

The appellant was charged with and convicted of the offence of rape contrary to H sections 130 and 131 of the Penal Code. The conviction was based solely on visual identification and uncorroborated testimony of the raped victim. The issue on appeal was whether the conviction was proper.

Held: (i) Before basing a conviction solely on evidence of visual identification, such I evidence must remove all possibilities of

1987 TLR p194

CHIPETA J

mistaken identity and the court must be satisfied that the conviction is watertight; since A the trial Magistrate considered these factors the conviction was proper;

(ii) in sexual offences, the court should warn itself of the dangers of acting on uncorroborated testimony of the complainant and having done so the court may convict B if it is satisfied that the victim's evidence is true.

Case Information

Appeal dismissed.

Cases referred to. C

1. R v Eria Sebwato [1960] EA 174
2. Waziri Amani v R [1980] TLR 250
3. Ghila v R [1967] EA 722
4. Moses Kasis & Charles Deo v R: Crim. App. No.105 of 1987 D (unreported).

[zJDz]Judgment

Chipeta, J.: The appellant in this appeal, Shiku s/o Salehe, was charged with and convicted of the offence of rape c/ss 130 and 131 of the Penal Code and was sentenced to five years imprisonment. He now appeals against both the conviction and sentence. E

The prosecution's evidence was that during the evening of 8th June, 1986 the complainant, one Hadija d/o Malale (P.W.1) who is aged 28 years, was at a pombe shop at Bukene where she and other people were drinking. Among those present at the pombe shop were the appellant and one Magunila. F

At about 11.00 p.m., P.W.1 left the pombe shop for her home. It was a moon-lit night and she was all alone.

When she was about 100 metres from the pombe shop on her way home two men, whom she identified to be the appellant and one Magunila, approached her and felled her to the ground. When she tried to raise an alarm, the appellant and his colleague G slapped her and threatened to kill her if she raised an alarm. The appellant's colleague then firmly held her legs wide apart while the appellant lay on her chest and had sexual intercourse with her until he ejaculated. Thereafter, the appellant in turn held her legs H wide apart as his colleague also had sexual intercourse with her until he too ejaculated. All this time she was calling them by their names and asking them why they were doing such things to her.

The matter did not end there. Having had sexual intercourse with her, they subjected her I to more physical violence: they twisted

her neck so violently that she defecated on the spot several times and later became A unconscious.

Next morning she was picked up by a police officer who then took her to Bukene Hospital. When she came sound she immediately named the appellant and the said Magunila as having been the people who raped her. B

That very day, she was examined by a senior rural medical aid (P.W.2) who observed that she had bruises and a swollen neck, and she had semen in her private parts which indicated that she had had sexual intercourse a few hours earlier. C

The appellant and his colleague were later arrested on the strength of the descriptions and names given by her. The said Magunila, however, disappeared after being released on police bond. The appellant was accordingly charged alone.

In his defence on oath, the appellant said that on 8th June, 1986, he was away in his D village and denied having gone to the pombe shop on the material day. He conceded, however, that he and the complainant have known each other for a long time.

After a very careful examination of the evidence before him, the learned trial district magistrate was fully satisfied that P.W.I was a truthful witness, and after considering the E circumstances in which the incident occurred, he was equally satisfied that P.W.I correctly and positively identified the appellant and his colleague and so rejected the appellant's alibi as creating no reasonable doubt in his mind. He accordingly convicted the appellant as charged. F

It is now trite law that before basing a conviction solely on evidence of visual identification, such evidence must remove all possibilities of mistaken identity and the court must be fully satisfied that the evidence is watertight. (See R. v Eria Sebwato, [1960] E.A. 174). That principle has been re-iterated by the Court of Appeal of G Tanzania, in the case of Waziri Amani v

Republic, [1980] TLR 250. In that case the Court of Appeal has advised as follows, at pages 251 - 252:

Although no hard and fast rules can be laid down as to the manner a trial judge should H determine questions of identity, it seems clear to us that he could not be said to have properly resolved the issue unless there is shown on the record a careful and considered analysis of all the surrounding circumstances of the crime being tried. We would, for example, expect, to I find in the record questions such as the following posed and

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CHIPETA J

resolved by him: the time the witness had the accused under observation; the distance at A which he observed him; the conditions in which such observation occurred for instance, whether it was day or night-time whether there was good or poor light at the scene; and further whether the witness know or had seen the accused before or not. B

In the present case, the learned magistrate, and he is to be commended for it, carefully analysed and considered the evidence of identification. He noted that the identifying witness (P.W.I) knew the appellant and his colleague before the incident; that the C appellant himself admitted this fact; that the witness had been with the appellant at the pombe shop shortly before the incident and that it was a moon-lit night. Further, he noted that she saw the rapists very close to her as they each lay on her chest in the act of the sexual intercourse; that she saw them for a long time while they took turns in raping D her; and that she immediately gave a description of the attire of the appellant and also gave their names.

It was after that careful analysis and consideration of the evidence of identification and all the surrounding circumstances of the incident that the learned trial magistrate was E satisfied that the evidence of identification was free from any possibility of error.

On my own re-assessment of the evidence on record there can be no doubt that P.W.I was a very truthful witness. Her graphical description of the ugly incident could only be made by a person who was not only present but actually suffered the agony. F

From all the surrounding circumstances, the amount of light then at the scene, the distance at which she saw the culprits, the length of time she had them under observation coupled with the fact that she knew the culprits before the incident, I respectfully agree with the learned magistrate that evidence of identification in this case met the required test. G

It is also trite law that in sexual offenses in which the victim is an adult, a judge should warn himself (and the assessors if any) of the danger of acting on the uncorroborated testimony of the complainant, but having done so he may convict in the absence of H corroboration if he is satisfied that her evidence is truthful. If no such warning is given, then the conviction will normally be set aside unless the appellate court is satisfied that there has been no failure of justice. (See Ghila v R. [1967] E.A. 722).

That principle was recently reiterated by the Court of Appeal of Tanzania in the case of I Moses Kasisi & Charles Deo v Republic,

1987 TLR p197

CHIPETA J

C.A.T. Criminal Appeal No. 105 of 1987 (unreported). In that case the Court stated: A

We agree that it is the rule that in any sexual offence, if the person against whom the offence is alleged to have been committed be an adult, the court should warn itself that it is not safe to B convict on the uncorroborated evidence of the complainant but that if it is satisfied of the truth of the complainant's evidence it may, after paying attention to the warning, nevertheless convict. We understand that the wisdom underlying this rule came from the 17th century C English jurist Sir Matl Hale, who wrote: "rape is an accusation easily to be made and hard to be proved, and harder to be defended by the party accused."

Having reiterated the rule, the Court stated that it may now be desirable to relook into D the whole question of corroboration as it relates to sexual offenses. If I may humbly add a voice to that of the Court of Appeal, the rule requiring corroboration in sexual offenses unduly protects rapists, and it is an indication of a veiled suspicion by the courts, which is E hard to justify, that women, generally well known for modesty and self-respect are apt to make false accusations in sexual matters. Would the requirement of truthfulness of an adult woman in such cases, as is the case in other cases, not suffice? F

So much for the digression. In the present case, the learned trial magistrate was aware of the rule requiring corroboration in such cases and cited the relevant authorities and, finding no corroboration in this case, duly warned himself of the danger of basing a conviction on the uncorroborated evidence of the complainant. After subjecting the G evidence to careful scrutiny as stated earlier, he was satisfied that it was safe to convict the appellant on the uncorroborated evidence of P.W.1.

On my own view of the evidence on record, I do not think that the warning the magistrate gave himself was merely for the purpose of abiding by the rule. I think he H took serious heed f the warning. I, therefore, respectfully agree with Mr Tendwa, learned senior state attorney who appeared for the Republic in this appeal, that the conviction of the appellant was well founded.,

I now turn to the sentence. In view of ugly facts in this case I am not persuaded that the I sentence of five years imprisonment was a day too long. The appellant and his colleague behaved like

brutes. They not only raped the complainant viciously but also nearly killed her. The A sentence, therefore, will also remain undisturbed, and as the same requires confirmation by this court, it is hereby confirmed.

In the result, this appeal is hereby dismissed in its entirety.

B Appeal dismissed.

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A

[zRPz]ISMAIL S/O BUSHAIJA v REPUBLIC 1986 TLR 1 (HC)

Court High Court of Tanzania - Mwanza
Judge Katiti J

August 14, 1986.
(PC) CRIMINAL APPEAL NO. 1 OF 1986
Flynote
Criminal Practice and Procedure - Assessors - Failure or omission to involve assessors when taking plea - Whether curable B defect.
Criminal Law - Pleas - Accused convicted on his own plea of guilty - On appeal accused alleges plea was entered by the magistrate against his wish - What appellate court to do.
-Headnote

In a Primary Court the accused was convicted, on his own plea of guilty, of robbery with violence. When taking the plea, C convicting and sentencing the accused the magistrate did not involve assessors. The first appellate court dismissed the appeal by applying the provisions of s.20(2)(a) of the Magistrate's Courts Act, 1984. On a further appeal to the High D Court the judge considered what an appellate court should do where the appellant alleges that the plea of guilty was planted.

Held: (i) Before an appellate court upholds a purported plea of guilty it has to satisfy itself that: E

(a) the charge drawn and signed by the trial magistrate is an offence known to law;

(b) it is an offence over which the court has jurisdiction;

(c) the offence charged is sufficiently identifiable from the facts as lodged by the complainant; F

(d) the plea was unequivocal;

(e) where applicable, the assessors played their statutory role;

(ii) the appellant did not plead guilty to an offence properly and accurately identifiable from the facts presented; G

(iii) failure or omission to involve assessors and have their opinions on the question of guilt or innocence of the accused violated the provisions of s.7(2) of the Magistrate's Courts Act 1984; and is an incurable defect.

Case Information

Appeal allowed. H

Case referred to:

1. Jumanne Hassan Kaluwona v R. [1970] H.C.D. 36 I

1986 TLR p2

[zJDz]Judgment

A Katiti, J.: Before Ibwera Primary Court, stood Ismail Bushaija charged with the offence of robbery c/ss 285 and 286 of the Penal Code Cap. 16 of the Laws. Purportedly on a plea of guilty, the trial Court without involving the assessors found him guilty as charged, and hence the imposition of the statutory minimum sentence for the B offence - seven years imprisonment. The said Ismail Bushaija aggrieved unsuccessfully appealed to the District Court, that confirmed the conviction and dismissed the appeal. I shall hence and herein refer to him as the appellant, as he has now appealed to this Court.

C The first appellate Court did dismiss the appellant's appeal, purely on technical grounds, that were unfortunately not related to the spectrum of the case generally in the face of the appellants charge that he never pleaded guilty and that the plea was planted. The first appellate court found an apparently easy route to dismiss the appeal by applying the D provisions of section 20(2)(a) of the Magistrate's Court Act 1984, that stipulate that "no appeal shall be allowed in any case of an accused person convicted of his own plea of guilty except against sentence or order of the payment of compensation." While I concede we have such statutory provisions, I have to hastily add, that the said provisions are not E supposed to operate in a vacuum, they are meant to apply to a certain set of pertinent facts and circumstances. Thus where an appellate court is faced with

an appeal, resultant from a plea of guilty, it should not dismiss the same mechanically simply because on the face of the record there was a plea of guilty. Such court is before upholding the F purpoted plea of guilty enjoined to first satisfy itself, first, that the charge drawn and signed by the trial Magistrate is an offence known to law, second, that it is an offence over which the Court has jurisdiction, third, that an offence charged is G an offence that is sufficiently identifiable from the facts has lodged by the complainant, fourth, that the accused's plea on the same was unequivocal and fifth, that, where applicable the assessors played their statutory role. All these questions can easily be answered through critical examination of every aspect of the case. For however well intentioned the plea of H guilty may be the conviction cannot be rendered valid, if the charged offence is not known to law, or where there is no jurisdiction, and where the plea is equivocal.

The appellant does contend in his memo of appeal, which he did not enter appearance to prosecute, that the trial I magistrate, did fake the plea of guilty, contending further that the vindication of this allegation, was that even the assessors were not involved in the

A finding of his guilt. The appellant is in summary saying that he never pleaded guilty at all. The Republic represented by Mr. Songoro a State Attorney, on the other hand declined to support conviction, saying that, the particulars, ambivalent as they were, did not even contain all the element of the offence of robbery with violence C/s 265 and 286 of the Penal Code Cap. 16. B

I have taken purposeful opportunity and liberty to examine the record in deserving depth, in the above direction and I have found therein features that procedurally, substantively and fundamentally go to the root of the legality of the C conviction, aspects that unfortunately escaped the corrective touch by the first appellate Court. Of course, apparently the trial magistrate does seem to have been more enthusiastic to reach conviction than rationally dealing with the case. I shall now and hence go into the above mentioned features.

D This criminal matter, arose out of the complaint by the complainant Martine s/o Bemanka before Ibwera Primary Court. It is common ground that a Primary Court has a dual carriage way for receipt of complaints in a criminal area, and that is first, Criminal proceedings may arise out of the initiative by the Police by presenting a written and signed charge to the said Court, the Primary Court Magistrate only having a peripheral duty of checking the propriety of sections and E related statutes etc. The second way, which is relevant and important in this case, is where a private complainant on his own initiative lodges a complaint of facts constituting an offence. What is a magistrate enjoined to do? The answer is this. F It is trite law now, that where a complainant lodges a complaint of facts constituting an offence, in respect of which a Primary Court has jurisdiction, the magistrate of that particular Primary Court, is unjoined to draw-up and sign a charge, with such particulars as are reasonably necessary, to identify the offence, or offences, including the law and section or G division under which the accused is charged, see Rule 20 of the Primary Court Criminal Procedure Code third schedule to Magistrate Courts Act 1984. In this case, the magistrate did try but our worry, which was not the worry of

the first H appellate court, is the identity of the offence. Of course, the magistrate cannot dream of complaints, they have to be filed by the complainant. In this case to understand how the charged offence was arrived at one has to see the complaint of facts given by the complainant. He inter alia complained thus: I

1986 TLR p4

KATITI J

A Mnamo tarehe 2/9/85 muda wa saa 6.00 mchana nilikwenda kwa Ismail Bushaija kumdai fedha zangu nilizomlimia. Hapo hapo, ndipo aliponipiga teke kwenye ubavu wa kushoto, na kunivuta nywele kichwani na kuninyofua. Ndipo watu wawili pamoja na mwanamke mmoja ambao walikuwa wakimkatia mbao wakanivamia, na kuanza kunipiga, fimbo mgongoni na mkono wa kulia. B Ndipo alipo waambia hao wenzake kwamba wanipige waniue, wanichimbie shimo wanifukie. Ndipo Ismail aliponinyanganya kofia moja, kiko, pamoja na shs. 150/= nilikuwa nimezifunga kwenye kitambaa ambazo zilikuwa kwenye koti langu, nililokuwa nimevaa akazitoa. C

It is from such complaint of facts, that the magistrate drew a charge of robbery c/s 285 and 286 of the Penal Code Cap. 16 of the Laws. Without entering into the area of credibility, which has no place here, the above complaint of facts, D considering the essential elements of the offence of robbery over which Primary Courts have jurisdiction, I do not think they were sufficiently established by the facts contained in the complaint above. While it could be argued that there was E violence, such violence's functional aspects in the process, is difficult to allocate a place, in the facts presented above. It is trite law - Jumanne Hassan Kaluwona v R. [1970] H.C.D. No. 36, to mention one of the many cases on this aspect, that violence or the threat thereof, must be applied either before the theft to facilitate such stealing and to obtain the property, or after the theft, to retain the thing stolen, or to prevent its recovery. In this case, there is difficulty in F determining the purpose of violence. Equally it is doubtful, the appellant who had the status of an employer, could steal his employees property. I would agree with Mr. Songoro, that the complaint as above lodged and charged, did not G satisfactorily establish that the offence charged was offence committed, and the plea thereto even if unequivocal, could not have the effect of putting the matter right, as it is not easy to say that the appellant was even aware, that he was actually pleading guilty to the serious offence of robbery with violence c/ss 285 and 286 of the Penal Code, if in actual fact he did. H

Further examination of the record, has revealed absence of compliance with the statutory provision section 7(2) of the Magistrates Courts Act 1984. These provision provide thus:

I 7(2) All matters in the Primary Court including a finding in any issue, the question of adjourning the hearing, an application

1986 TLR p5

A for bail, a question of guilt or innocence of an accused

person, the determination of sentence, the assessment of momentary award and all questions and issues whatsoever shall, in the event of difference between a magistrate and the assessors or any of them, be decided by Votes of the majority of the B magistrate and assessors

present and in the event of an equality of Votes, the magistrate shall have the casting vote, in addition to his deliberative vote.

The above underlining has purposefully been made by myself. As aforementioned the record shows there was failure to C partly comply with the above provisions. It is to be observed with a naked eye, that the assessors were not involved in any sense on the question of guilt, or innocence of the appellant. But the assessors participation in this regard is statutorily mandatory, and does not lie within the available options, the trial magistrate is discretionally allowed to take. Thus failure D or omission to associate the assessors and have their opinions on the question of guilt or innocence as dictated by section 7(2) of the Magistrates Court Act 1984, is a defect that is not even tolerable nor curable, not even under the doctrine of substantial Justice. Thus apart from doubts whether the appellant pleaded guilty to an offence properly and E accurately identifiable from the facts presented. We have an incurable breach of statutory command, either of which severally and independently has to unseat the conviction.

F From the aforegoing, I find myself disposed to agree with the Republic, that the conviction is not supportable. I hereby allow the appeal, quash conviction and set aside the sentence. It is ordered that the appellant be set at liberty unless he otherwise has been legally held.

G Appeal allowed.

1986 TLR p6

A

[zRPz]STEPHEN KIBERENGE AND OTHERS v REPUBLIC 1986 TLR 6 (HC)

Court High Court of Tanzania - Mwanza

Judge Mwalusanya J

June 23, 1986:

CRIMINAL APPEAL III OF 1986

Flynote

B Criminal Practice and Procedure - Appeals - Order of a magistrate under section 15 (6) of the Stock Theft Ordinance, Cap. 422 - Whether appealable.

Stock Theft Ordinance - Order under section 15(6) of the Ordinance - Whether appealable. C -Headnote

The representatives of a village were charged with theft of cattle or sheltering cattle thieves in connection with an inquiry on cattle theft by the village. They were found guilty of sheltering cattle thieves and convicted accordingly. On appeal the D judge considered whether the order given by the magistrate under s. 15(6) of the stock Theft Ordinance, Cap. 422 is appellable.

Held: (i) According to s.15(6) of the Stock Theft Ordinance an order of a magistrate under this section is final and E therefore not appealable;

(ii) the magistrate's order may be challenged by way of certiorari or mandamus.

Case Information

F Appeal dismissed.

Cases referred to:

1. Re Ex Parte Gilmore [1956] 1 Q.B. 574.
2. Re Marles' Application [1928] E.A. 153.

G Mattaba, for the respondent.

[zJDz]Judgment

Mwalusanya, J.: This was an 'inquiry' under s.15(1)(b)(iii) of the Stock Theft Ordinance Cap. 422 H made by the Serengeti District Court to determine as to whether the members of Machochwe village were sheltering cattle thieves or otherwise assisting some cattle thieves. Some 497 head of cattle had been stolen from Nyamburi village in the same District on 5/10/1985 and on following the trail the same disappeared at Machochwe village. At the end of I the day the trial magistrate held that indeed the members of Machochwe village were guilty of sheltering cattle thieves and

1986 TLR p7

MWALUSANYA J

A so the seizure of cattle from that village to compensate the complainants from Nyamburi village was justified.

I have already pointed out my qualms in Criminal Appeal No. 107/86 over the manner the trial magistrate conducts these type of 'inquiries', and it leaves much to be desired. First of all the procedure of charging the representatives from the B offending village with the offence of cattle theft is wrong. When you conduct an inquiry you don't charge anybody. All you have to do is give enough opportunity to both sides to be heard. And what is worse is charging them under a non-existent offence. It is absurd and I say so because it is common knowledge that s. 268(1) of the Penal Code Cap. C 16 under which they were partially charged, has been repealed by Economic and Organised Crime Control Act No. 13 of 1984. It is hoped that the trial magistrate will in the future endeavour to appraise himself of the correct manner of holding 'inquiries' under the Stock Theft Ordinance. D

Now the pertinent question is as to whether in spite of all the misgivings I have just raised, the order or decision of the trial magistrate is appealable or not. It is my finding that the decision is not appealable, just as I so held in Stephen s/o Kiberenge and others v R: Crim. Appeal No. 107 of 1986 (unreported). My holding stems from s.15(6) of the Stock E Theft Ordinance Cap. 422 which provides:

> 'An Order of a magistrate under this section shall be final'.

That is interpreted to mean that an order of the magistrate is not appealable. F

However following the reasoning in the decision of the Court of Appeal in England in Re Ex-parte Gilmore: [1956] 1 G Q.B.574 and that of the High Court of Kenya in Re Marles' Application: [1958] E.A 153 which I adopt, the word 'final' only means 'without appeal' but it does not mean 'without recourse to Certiorari or Mandamus'. And so the order of the trial magistrate may only be challenged in the High Court by means of prerogative orders of certiorari or mandamus. H

In the event the appeal fails and it is dismissed.

Appeal dismissed. I

1986 TLR p8

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[zRPz]MARCELA BARTHAZAR v HUSSEIN RAJAB 1986 TLR 8 (HC)

Court High Court of Tanzania - Bukoba
Judge Moshi J

16 March, 1987
CIVIL APPEAL 16 OF 1985
Flynote
B Criminal Law - Compensation order - Compensation in respect of convicted juveniles
-Headnote
In the course of a fight between two school children one of them was wounded. The child who wounded the other was convicted of unlawful wounding and ordered to pay compensation to the wounded child. C
Held: (i) A compensation order in respect of convicted juveniles may in an appropriate case only be made against a parent or guardian of the child or young person. It cannot be made against the juvenile. D

(ii) a parent or guardian against whom a compensation order in respect of a convicted juvenile is made must be given an opportunity to be heard.
Case Information
Appeal allowed. E
No case referred to.
[zJDz]Judgment
F Moshi, J.: Before the Urban Primary Court of Bukoba, the child of the appellant aged 13 years, Peter s/o Ponciani, was charged with, and convicted of, unlawfully wounding the child of the respondent aged 10 years, Haiba d/o Hussein, c/s 228(1) of the Penal Code. Peter Ponciani was placed on twelve month's probation, and ordered G to pay Haiba Hussein a compensation of shs. 400/=.
The respondent was dissatisfied with the amount of compensation awarded. He filed a suit in the Bukoba Resident Magistrate's court, based upon the urban court case, against the appellant for a compensation of shs. 20,000/=. It was H Civil Case No. 44 of 1983, and he was awarded a compensation of shs. 1,000/=. The appellant was aggrieved, and hence this appeal.
It is clear to me that the order by the Urban Primary Court that the appellant's child was to pay compensation was ultra I vires. Compensation in respect of convicted juveniles is governed by section 21 of the Children and Young Persons Ordinance, Cap. 13.
1986 TLR p9
MOSHI J
A Such an order may in an appropriate case only be made against a parent or guardian of the child or young person. It cannot be made against the juvenile. Even if the order had been made against the appellant, a parent, the position, in my view, would not have changed. Such an order

would have been invalid for the following reasons. Section 21(2) of Cap. 13 provides that a court may not order a parent to pay a fine or compensation or costs without giving the parent an B opportunity to be heard. The urban court did not give the appellant an opportunity to be heard notwithstanding that she could easily have been available. She did not appear before the urban court. She was not summoned to appear. In the C circumstances, no lawful compensation order could have been made against her. For the foregoing reasons, the order for compensation made by the urban court is hereby set aside.

Considering the appeal itself, it seems to me that it has merit. It was amply established before the urban court and in the court of resident magistrate that the respondent's child, Haiba d/o Hussein, sustained some injury at the hands of the child D of the appellant, Peter s/o Ponciani. But the circumstances, as disclosed in evidence, were in my view such that it was undesirable to order the appellant to pay any compensation. The parties are neighbours. The children were attending E school and, at the material time, they were coming from school together with other school children. There was no evidence or indication from the evidence that the appellant in any way conduced to the commission of the offence by neglecting to exercise due care of her offending child. The incident was a result of common trivial school children's playful F squabbles for which it is wrong, of itself, to hold parents or guardians responsible by way of payment of compensation. It is neither conducive to, nor shall it promote, good and amicable neighbourly relations. The injury itself was medically categorised as a mere "harm" (Exh.A), and the claim in the plaint about permanent disfigurement was, as rightly found by G the trial court, an exaggeration and clearly unsupported by evidence. On the evidence, and in the circumstances, there was no material upon which the lower court could have properly founded an order for compensation against the appellant. There was no evidence that the appellant was uncooperative with, or that she displayed a hostile attitude H towards, the respondent shortly after the incident. If anything, it was the reverse. I am satisfied that the order for compensation was wrongly made, and that it cannot be allowed to stand. I

A For the foregoing reasons, I allow the appeal, set aside the judgment of the Bukoba Resident Magistrate's Court, and the orders for compensation by both courts below, and hereby direct a refund of the money in the event that the order has been executed. I make no order as to costs.

Appeal allowed. B

1986 TLR p10

C

[zRPz]MAGESA s/o MJUNJA v THE REPUBLIC 1986 TLR 10 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

12 December, 1986
CIVIL APPEAL 186 OF 1985

Flynote

D Criminal Practice and Procedure - Charges - Charge under repealed legislation - Irregularity - Whether curable.

Criminal Law - Pharmaceutical and Poisons Act 1978 - Accused convicted of being in possession of Part I Poison - Accused in E possession of chloroquine injection - Chloroquine injection not on Poison List - Whether a report by a medical doctor to the effect that chloroquine injection was Part I poison was final.

-Headnote

The appellant was charged and convicted under a repealed law for being in possession of Part I poison. The District F Court relied on a report by a medical doctor that chloroquine injection is Part I poison.

Held: (i) A charge and conviction under a repealed law is an irregularity which is curable if the repealed section is G re-enacted in identical words in the current statute such that it cannot be said that the accused has in any way been prejudiced by the irregularity;

(ii) under s.60(1) of the Pharmaceutical and Poisons Act, 1978 a certificate by a Government Analyst that a certain substance is Part I poison is final. A report by an ordinary doctor as to whether a substance is Part I poison is not H final.

Case Information

Order accordingly.

Cases referred to:

1. Omari Said v R. [1972] H.C.D. n. 183 I

1986 TLR p11

MWALUSANYA J

A 2. Matu s/o Gichumu v R. (1951) 18 E.A.C.A. 311

Mr. Mataba for the Republic

[zJDz]Judgment

Mwalusanya, J. The appellant Magesa Andrea s/o Mjunja was charged and convicted under s. B 25(2) of the Pharmacy and Poison Ordinance Cap. 416 for being in unlawful possession of Part I poison. He was sentenced to three years imprisonment. He is now appealing against conviction and sentence. Apparently the learned C District Magistrate of Ukerewe District is not yet aware that the statute under which the appellant was charged has been repealed by the Pharmaceutical and Poisons Act. No. 9 of 1978. And so the immediate issue is whether the conviction under the repealed statute is curable. In a similar quandary in the case of Omari Said v R. [1972] H.C.D n. 183 Mfalila J. held that the irregularity was curable. In fact he was echoing the ruling of the Court of Appeal for Eastern Africa in th D e case of Matu s/o Gichuma v R. (1951) 18 E.A.C.A. 311 where it was held that such irregularity is curable if the repealed section is re-enacted in identical words in the current statute such that it cannot be said that the accused has in E anyway been prejudiced by the irregularity. Following that respectable authority I find that the offence with which appellant was charged has been re-enacted in identical words under s. 37(1) of the new statute. In the circumstances the appellant could not have been prejudiced by the irregularity. In other words the irregularity is curable. F

The next important question to explore is whether chloroquine injection is in the list of Part I poisons. At the trial there was a report (Exh. P4) by one Dr. Led Nyerembe to the effect that chloroquine injection was Part I poison. In order to satisfy my curiosity I began to scan the Poisons List (Declaration) Order GN.22/1980 to see if in that long list there is a G name of chloroquine injection. I could not see chloroquine injection in the list. But I saw chloroquine (natural salts of chloroquine and chiniofon) in the list.

It is significant to note that the doctor was not called at the trial as a witness, perhaps if he had been called he would have clarified to us laymen whether chloroquine injection is the same thing as chloroquinate. Without that evidence I am not H prepared to so hold. It is also significant to note that under the repealed statute, chloroquinate was not in the list of Part I Poison. It does not appear that the new statute has declared the whole chloroquine to be Part I poison but that only I chloroquinate has been so declared and that

A should be proved in court to contain natural salts of chloroquine and chiniofon. But that has not been done in this case.

Under s.60 (1) of the Pharmaceutical and Poisons Act No.9 of 1978 a certificate by a Government Analyst that a certain substance is Part I Poison is final. However the doctor in this case Dr. Led Nyerembe is not a government analyst as it B does not appear in any government gazette that he has been so appointed by the Minister of Health. Therefore the medical report of an ordinary doctor is not final as to whether a substance is Part I poison although of course it is entitled to some respect.

C In the event I need not go into detail as to whether appellant was found with the chloroquine injection bottles or not. However I might observe in passing that evidence was overwhelming indeed that he was so found.

Consequently I am constrained to allow the appeal. I quash the conviction and set aside the sentence. The appellant D should be released forthwith unless held for any other offence.

Order accordingly. E

F

[zRPz]REPUBLIC v ASIA SALUM AND OTHERS 1986 TLR 12 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mnzavas JK

21 December, 1983
CRIMINAL REVISION 7 OF 1983
Flynote

G Criminal Practice and Procedure - Sentencing - Youthful offender - First offender - Considerations to take into account

-Headnote

The accused mother and her 17 year old son were convicted of assault causing actual bodily harm. The mother, a first offender, and her youthful son were each sentenced to twelve months' imprisonment. The record of the proceedings was H called by the High Court for the purpose of satisfying itself as to the correctness, legality or propriety of, inter alia, the sentences imposed.
Held: (i) Where a first offender is concerned the emphasis should always be on the reformative aspect of punishment I unless the

A offence is of such a serious nature that an exemplary punishment is required or unless the offence is so widespread that severe punishment is needed as a shock deterrent;

(ii) first offenders should not, as a rule, be sent to prison where there is an opportunity to mix with and learn bad habits from more seasoned criminals; B

(iii) the sentence of 12 months imprisonment imposed on the first accused in the circumstances of this case was rather on the high side;

(iv) youthful offenders should not be sentenced to terms of imprisonment. C

Case Information

Order accordingly.

Cases referred to:

1. R. v Kidato Abdulla [1973] L.R.T. 82 D
2. R. v Teodosio s/o Alifa [1967] HCD 216
3. Hattan v.R. [1969] HCD 234.

[zJDz]Judgment

Mnzavas, J.K.: On 23/11/1983 Asia Salum, Hussein Said and Rashidi Saidi were jointly convicted of assault causing actual bodily harm c/s 241 of the Penal Code. E

Asia Salum and her son, Hussein Said, were each sentenced to 12 months imprisonment whereas her other son, Rashidi Saidi, who the trial Court found to be 16 years old was put under probation for a period of one year. F

Soon after accused's relatives complained to the Registrar of the High Court who brought the matter to the Notice of the Court.

Acting under section 327 of the Criminal Procedure Code this Court called for the record for the purpose of satisfying itself as to the correctness, legality or propriety of the finding and the sentences imposed. On inspection of the record the G Court minuted:

Admit for revision....

(i) The sentences imposed could appear to be rather severe for first offenders. H

(ii) 2nd accused is a school boy.

Let the D.P.P. be served with notice.

When the matter came up for hearing on 12/12/83 Mr. Shio, learned state attorney, argued in support of the convictions. As for the sentences of 12 months imposed on the first and second I

A accused the learned counsel was of the view that the first accused, Asia Salum, was properly sentenced to 12 months imprisonment. It was argued that the sentence of 12 months in respect of the first accused was not manifestly excessive bearing in mind that the offence of assault causing actual bodily harm carries a maximum penalty of 5 years imprisonment. B

As for the second accused, Hussein Saidi, the Republic argued that there was undisputed evidence that he was a school boy aged seventeen and in Form III. It was submitted that it was wrong for the trial court to sentence him to a term of imprisonment.

C The learned state attorney had no quarrel with the order by the trial court to place the third accused under probation for one year.

After hearing learned counsel's submission I set aside the sentence of 12 months imprisonment imposed on the second D accused, Husseini Saidi, and in substitution therefore I sentenced him to such term of imprisonment as would result in his immediate release from custody unless he was otherwise lawfully held; and reserved my reasons for such order. I now E give my reasons:

In so far as the convictions are concerned I agree with the Republic submission that there was ample evidence in support of the charge of assault causing actual bodily harm.

Coming to the sentence of 12 months imprisonment there was no dispute that the second accused is a school boy and, he is 17 years old; and he is also a first offender.

F In imposing sentence the court is required to take into consideration several factors; such as, the gravity of the offence the record of the accused, his age and the interests of society and those of the accused. That this is the principle to be followed is clear from the decision of this court in Republic v Kidato Abudlla [1973] L.R.T. 82.

G In the present case the second accused is, as already mentioned above, aged seventeen. He is a form III student and a first offender. As for the nature of the injury on the complainant, PF.3 (exhibit A) shows that he suffered a cut wound 1/2 H x1/4 x1/4" on his face and dislocation of the left shoulder. Taking all these factors into account the learned trial magistrate should have found that it would have served no useful purpose to sentence the second accused to a term of imprisonment. The imprisonment would only serve to bring the school boy into contact with hard core criminals and make him more of a criminal by the time he left the prison than when he entered it. That youthful offenders should not be I sentenced to terms

A of imprisonment is also evident from the decision of this court in R. v Teodosio s/o Alifa [1967] HCD 216.

On the facts of this case the second accused should have been bound over, or put under probation or even discharged, conditionally or absolutely u/s 38 of the Penal Code. It is for these reasons that I ordered the release of the second accused on 12/12/83. B

Coming to the first accused it is not in dispute that she is, but for this offence a first offender. It was no doubt most unbecoming for her and her children to assault their neighbour the way they did, and for that she deserved a deterrent sentence. But the question is whether the sentence of 12 months imprisonment was so manifestly excessive as to call for C interference by this Court. As I have already mentioned above the learned state attorney argued that the sentence was

proper in the circumstances. May be the learned state attorney has a point; but it has also to be remembered that the 1st accused had an unblemished record; and, as it was held by this Court in Hattan v R. [1969] HCD 234 "Where a first D offender is concerned the emphasis should always be on the reformative aspect of punishment unless the offence is one of such a serious nature that an exemplary punishment is required or unless the offence is so widespread that severe punishment is needed as a shock deterrent". E

The Court also said: "It is generally agreed that first offenders should not as a rule be sent to prison where there is an opportunity to mix with and learn bad habits from more seasoned criminals." Had the learned trial magistrate taken into account the factors to be taken into account in sentencing before sentencing the accused to twelve months imprisonment F he would no doubt have found that despite 1st accused's recklessness and unsocial behaviour she, being a first offender, deserved some leniency.

Taking these factors into account it is the view of this Court that the sentence of 12 months imprisonment in the circumstances of this case was rather on the high side. G

I accordingly hereby reduce the sentence of 12 months imprisonment to one of 3 months imprisonment only.

Order accordingly H .

1986 TLR p16

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[zRPz]REPUBLIC v OMARI KIBWANA 1986 TLR 16 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Mnzavas JK

21 November, 1983

CRIMINAL REVISION 6 OF 1983

Flynote

B Criminal Practice and Procedure - Bail - Surety failing to produce accused in Court - What court to do.

-Headnote

Omari Kibwana stood surety for an accused person. The bail bond was shs. 60,000/=. On one occasion he failed to C produce the accused before the Court as required. He himself attended the court and explained that the accused was sick. The magistrate ordered forfeiture of the bond or six months imprisonment. Kibwana was imprisoned. The record of proceedings was called by the High Court for inspection and revision. D

Held: (i) Where the accused fails to appear on an appointed date it is preferable not to forfeit the bond of the surety too quickly, it is best to adjourn and allow the surety time to find the accused if he thinks he can get him; E

(ii) as there was no reason to make the court think that the surety was lying it was clearly wrong on the part of the learned Senior Resident Magistrate to sentence the surety to a term of imprisonment.

Case Information

Order accordingly. F

Cases referred to:

1. Hudson s/o Salum v R. [1975] L.R.T. 34
2. Koba s/o Joseph v R. [1968] HCD 96 G

Chiza, for the Republic.

[zJDz]Judgment

Mnzavas, J.K.: On 20/1/81 the convict Omari Kibwana stood surety for one, Ally Kisagase, H second accused in Kivukoni Criminal case no. 828/80, at shs. 60,000/= bail. He continued to produce the accused in court every time he was required to appear, but on 24/10/83 he failed to produce him before the court as required.

I He himself attended the court and on being asked by the presiding magistrate as to why Ally Kisagase, the second accused, was

A not in court he replied that the second accused was sick. There upon the learned Senior Resident Magistrate said:

"This accused has several times defaulted to attend--- Surety for second accused to forfeit his bail bond of shs. 60,000/= or six months imprisonment." B

The accused failed to pay shs. 60,000/= and was consequently sentenced to six months imprisonment.

Dissatisfied by the decision of the lower court Kibwana's relative has written to this Court complaining against the C imprisonment of Kibwana. On receipt of the letter the lower court's record was called for inspection and, the Court ordered that revision proceedings be opened. When the case came up for revision on 21/11/83 Mr. Chiza, learned state attorney, argued that it was wrong on the part of the trial Senior Resident Magistrate to send the accused to prison. It D was the learned counsel's submission that the surety should have been given an opportunity to produce the accused before deciding what punishment was to be imposed.

With respect I tend to agree with the argument by the Republic that in deciding to send the surety to prison for his failure E to produce the accused in Court the Senior Resident Magistrate acted rather hastily. The surety's argument for not producing the accused was that the accused was indisposed. It may have been (or may not have been) true that the accused was unable to attend the court because he was sick. We do not know for sure that the accused was sick but F prima facie the Court had the word of the surety that the accused was sick hence his inability to attend the Court. That being the position it would have been a more just decision if the learned trial magistrate had given the surety a day or two to produce the accused; this would have given the court time to investigate the surety's story. G

This Court had occasion to deal with a similar situation in Hudson s/o Salum v R. [1975] LRT No. 34 where Kisanga Judge (as he then was) said: (1) Where the accused fails to appear on an appointed date it is preferable not to forfeit the H bond of the surety too quickly, it is best to adjourn and allow the surety time to find the accused if he thinks he can get him.
In an earlier case Hamlyn, J. said inter alia in Koba s/o Joseph v R. [1968] HDC 96:
"--- It was most improper on the part of the lower court to have imprisoned the surety." I
1986 TLR p18
A In the present case the surety had told the court that the second accused was, by reason of illness, unable to attend the court. As there was no reason to make the court think that the surety was lying it was clearly wrong on the part of the learned Senior Resident Magistrate to sentence the surety to a term of imprisonment. Even where it is proved that a B surety was responsible for the non-attendance of an accused, the accepted practice is that the surety's bond is forfeited or his property is sold to realize the value of the bond.
The peremptory sentence of six months imprisonment was clearly uncalled for and cannot be allowed to stand. In C exercising my powers of revision under s. 329 of the Criminal Procedure Code I hereby set aside the sentence of six months and I accordingly order that he be released from custody forthwith unless he is otherwise lawfully held.
Appeal allowed. D
1986 TLR p18
E
[zRPz]HUSSEIN KASIMU v THE REPUBLIC 1986 TLR 18 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

November 3, 1983
CRIMINAL APPEAL 9 of 1983
Flynote
F Criminal Practice and Procedure - Charges - Accused charged with dangerous driving and causing death through dangerous driving - Counts not preferred in the alternative - Illegal.
G Road Traffic - Evidence - Evaluation of - No evidence that appellant departed from the standard of driving expected of a reasonably prudent driver.
Evidence - Evaluation of - No evidence that appellant departed from the standard of driving expected of a reasonably prudent driver. H
-Headnote
The appellant was charged with and convicted of two offences of dangerous driving and causing death through dangerous driving. On appeal the High Court considered whether or not it was legal to prefer the two counts separately. In addition I the High Court re-evaluated the evidence adduced before the lower court.
1986 TLR p19

SISYA J

A Held: (i) Having charged the appellant with causing death through dangerous driving it becomes not only most undesirable but also contrary to law to charge him, by way of another and/or separate count, of the lesser offence of dangerous driving;

(ii) in so far as the appellant had the right of way and there was no traffic ahead and in the absence of evidence of B a departure from the standard of driving expected of a reasonably prudent driver the mode of driving adopted by the appellant before and/or at the time of the accident cannot be faulted.

Case Information

Appeal allowed. C

Case referred to:

1. R. v Wallace [1958] E.A. 582

[zJDz]Judgment

Sisya, J.: The appellant, Hussein Kasimu, was charged with and convicted of two offences of D dangerous driving and causing death through dangerous driving. Both these are offences under the Road Traffic Act, 1973. He was sentenced by the learned Resident Magistrate, Tanga, to a substantive term of three years imprisonment. His driving licence was also cancelled for four years. Aggrieved, he has now appealed to the Court. E

In paragraph two of his judgment the learned Resident Magistrate made the following observation regarding the two counts that is to say, 'The particulars are similar since it is the act of dangerous driving that is said to have resulted into the F death of a motorcyclist...' There can be no doubt that the offence of causing death through dangerous driving which, incidentally, is charged in count two is major to the one charged in count one, i.e. the one of dangerous driving which is minor. Not only that. As quite correctly observed by the learned Resident Magistrate, the particulars of the first, or the G dangerous driving count are the same and/or are included in the offence charged in count two, i.e. that of causing death through dangerous driving. Since the two offences charged were founded on the same set of facts it is not immediately H clear to me why it was decided to charge the appellant with both the major and the minor offences. It is just like charging a man with robbery with violence in one count and with stealing or assault in another count.

As aforementioned the learned Resident Magistrate convicted the appellant. He did not end there. He then proceeded to I and, in fact, he did sentence the appellant on both counts. On count I he sent

A the appellant to jail for two years and on count two appellant was sentenced to three years imprisonment; sentences to run concurrently. In so doing the appellant was, in effect, punished twice for the same offence of dangerous driving.

Having charged the appellant with causing death through dangerous driving it became not only most undesirable but also B contrary to law to charge him, by way of another and/or separate

count, of the lesser offence of dangerous driving. In this connection reference is hereby made to section 21 of the Penal Code which lays down that: C

A person shall not be punished twice, either under the provisions of this Code or under the provisions of any other law, for the same offence.

D Obviously, there would have been no need for me to say all this had the two counts been preferred in the alternative. The question that now arises is what is to be done about the illegality. I will defer this question and deal with it later in this judgment, if need be.

It is now fully established that in cases of dangerous driving the act or omission upon which the prosecution rely to prove E dangerous driving must be specified in the charge. The act and/or omission of dangerous driving alleged by the Prosecution in the present case and which is shown in the charge as laid is that the appellant, while driving a bus registration no. TZ 58576, failed to slow down at a road junction and further that he failed to 'take proper precaution to F prevent the occurrence of an accident'. This latter aspect of dangerous driving, that is the omission to take proper precaution to prevent the occurrence of an accident, is nebulous and it ought, therefore, to have been particularized. This was not done.

G Be it as it may, the case for the prosecution rested almost entirely on the oral testimony of a single witness who claimed to have witnessed the accident which involved a bus and a motor cyclist and in which the latter, sadly, lost his life. The substantive part of the evidence of the said eye witness, one Joseph Andrew Mang'enya (PW1) reads and I quote from the record of proceedings: H

'.... On 18/5/82 at about 9.00 a.m. I was at between 12th and 13th at a watch repairer. While there standing I faced east towards Tanga Cinema and saw a bus with "AMBIYANSE" writing. It was a leyland bus. While approaching towards bus I

A stand from Tanga Cinema direction it entered 13rd (Sic) road without stopping. A motor cyclist was then driving along 13th road. The two met and the motor cyclist hit the bus at the door to passengers. ....'

B After the accident the Traffic Police were informed. The Traffic Police officer who visited the scene after the accident, one P.C. Makoye (PW2), gave evidence at the trial. He stated that he saw brake marks and also what he described as 'crutch pulling marks after accident' at the scene. These were caused by the motor cycle. There were no brake or tyre marks which were caused by the bus. P.C. Makoye drew a sketch plan which was tendered and submitted in evidence C and marked P.1.

The bus was inspected by a motor vehicle inspector, one Corporal Idi (PW3). It was passed as mechanically sound and/or in order prior to the accident. The motor cycle could not be examined because it was extensively damaged. D

P.C. Makoye ((PW2) stated in his evidence that one of the persons whom he found at the scene was one Mwakasha. He was the person who claimed to have "stopped" the appellant. P.C. Makoye could not recall seeing Joseph Mang'enya at the scene.

The said Mwakasha was not called as a witness and consequently he did not give evidence in the case.

In his statement upon affirmation in his own defence at the trial the appellant stated that on the relevant day and at the material time he was driving from the direction of 18th Street towards the bus stand. He crossed the 17th, 16th, 15th and 14th Streets. Before he did so he stopped at each and every street because there were "stop" signs. There was, however, no 'stop' sign before the 13th Street. Nevertheless, he slowed down and he looked right and left. There was no traffic and, therefore, he drove on. Moving in the first gear. As he was crossing the 13th Street he heard "something on the left hand side" but he did not know what it was. People then rushed towards him while shouting, "You have killed! You have killed". He stopped the bus, stepped down and ran away because he was scared.

In his judgment the learned Resident Magistrate was satisfied that the motor cyclist, one Joseph Thomas Mramba, died as a result of the injuries which he sustained in the accident. This finding is sound as it is supported and justified by the evidence. The learned Resident Magistrate was also satisfied that the accident occurred at the junction of the 13th Street along which the

appellant was driving the leyland bus. This too cannot be faulted.

In dealing with the appellant's story in his own defence at the trial the learned Resident Magistrate had this to say, and I quote from his judgment:

'The accused claims he did not see the deceased on the motor cycle. In other words the deceased came from the blues. PW1 Joseph David Mang'enya saw him along 13th Street. PW2 P.C. Makoye detected motor cycle tyre marks covering 38 feet. I do not think that the deceased had descended from heaven and dropped at the place of accident'.

He repeated this theme in his judgment when he, again, said:

'The accused gave evidence denying to have had prior notice of the deceased on the road along 13th street. The deceased did not descend from heaven like manna!

With respect, it seems the learned Resident Magistrate misunderstood the import of the appellant's evidence on this aspect of the matter, that is to say, when he, i.e. appellant, denied seeing the deceased prior to the accident. As a result of the said misunderstanding the learned Resident Magistrate completely missed the point which the appellant was trying to make.

If I may begin by somewhat digressing a little, it is not correct to say that P.C. Makoye saw motor cycle tyre marks covering a distance of 38 feet. What P.C. Makoye said he saw covering the said distance of 38 feet were actually motor cycle brake marks. Brake marks, it must be pointed out, are not the same thing as and/or are different from tyre marks. The former are caused by friction when the tyres rub against the surface of the road as a result of braking whereas the latter are simply an impression left by tyres as they roll along the surface of the road. P.C. Makoye did not see, at least he did not say that he saw, any tyre marks at all at the scene, be they of the motor cycle or of the bus. Indeed he could not have done so if the road at the scene is, as most of the roads in the municipality of Tanga are, tarmac.

Secondly and, perhaps, more importantly I think it is clear upon a proper construction and interpretation of what the appellant said regarding the deceased's presence or non presence along the 13th Street that all he meant was that he did I not see the deceased ahead or in front of him prior to the accident. This, in fact, is borne

1986 TLR p23

SISYA J

A out by the very way the accident occurred. It was not, so to speak, a head on collision nor was it the front part, or a portion thereof, of the bus which came into contact with the motor cyclist. The evidence, on the prosecution's own side, is that it was the motor cyclist who knocked the bus, and this was on the side near the passengers' door. It cannot be denied, in fact it must be conceded that, positionwise, the passengers' door of a bus is behind the driver's seat. The B question that now arises is, how can a man see what goes on behind his back? The answer is obviously that he cannot. My understanding of the law is that it is a primary duty of drivers on a road to keep a reasonable lookout for obstructions or traffic ahead in time to avoid a collision. C

The learned Resident Magistrate dealt with the duty of drivers on the road. On this aspect of the matter he directed himself in the following terms:

D 'Even assuming that the accused was on a major road and the deceased on a minor road the accused was duty bound to consider that there might be other road users. Instead he crossed the 13th street as if the two roads were exclusively for his own use. He faulted in his duty to take care. His driving was dangerous and I so find.' E

With great respect, this was a serious misdirection. The duty which the law imposes on drivers is the duty to keep a reasonable look-out, and not to have to anticipate unreasonable or dangerous behaviour on the part of other drivers or F road user, see R.v Wallace [1958] E.A. 582 at page 585. In the instant matter there is uncontroverted evidence of the appellant that when he got to the junction of the 13th Street and Lipia Street he slowed down and crossed when he noticed that there was no traffic ahead of him. G

The status of the two streets, that is 13th Street and Lipia Street was not determined. When questioned by the trial Court on this point P.C. Makoye is recorded to have said, and I quote from the record of proceedings:

'XXD BY COURT: There is no sign on either road to indicate which is minor and which is the major road'. H

In such circumstances it was open to the trial Court, as it also now is open to this Court, to find, which I do that the two I streets under query are of equal status. That being the case the position at

1986 TLR 24

SISYA J

A law is that any person driving, pulling or propelling any vehicle or riding any cycle or driving any animal on either of these two roads shall give the right of way to traffic approaching along the road from the right, see s.13 of the Tanga Town Council (Traffic) By-Laws 1956. The evidence which was adduced in the case shows that it was the appellant who had the right of

way. Since vehicles must move on the road it was not incumbent upon the appellant to stop at the B junction, of course, so long as there was no traffic, of which indeed there was none at the material time, ahead or in front of him.

C On the mode of driving which the appellant adopted at the time of the accident the learned Resident Magistrate had this to say and, again, I quote from his judgment:

'PW1 Joseph Mang'enya, an eye witness did not see the accused stop before he crossed the 13th Street. In his opinion the D accused was speeding. The witness laid no basis for that opinion. However, apart from his testimony there was indelible evidence on the road indicating a distance of 66 feet the bus covered after the accident' (The underscoring is mine).

E With the greatest respect this passage bristles with misdirections. First and foremost it is the mode of driving before or at the time of the accident which counts and/or matters; not after the accident. This is because anything can happen after an impact, for example, the driver may lose control. By dwelling, primarily, on what happened to the bus after the F accident in coming to the conclusion that the appellant was driving at speed the learned Resident Magistrate, therefore, erred in law.

G Secondly, it is not correct to say that PW1 Joseph Mang'enya, expressed any opinion on the speed at which the appellant drove the bus. I have gone through the evidence of PW1 several times but nowhere did he express such opinion on the speed of the bus, or even of the motor cycle for that matter. All PW1 said which has some bearing on the mode of H driving which was adopted by the appellant before or at the time of the accident was that the appellant did not stop before he crossed the 13th Street. I have already pointed out that since the appellant had the right of way and in the absence of any obstruction or traffic ahead there was no need for him to stop at the intersection of the 13th and Lipia Streets.

I In fairness to the learned Resident Magistrate there was a witness who made reference to the speed at which the appellant drove

A the bus. This was P.C. Makoye (PW2) who said, on this aspect of the matter:

'The bus driver had not stopped because there are no brake or tyre marks. He stopped at a long distance and this tells of high Speed'. B

To say the least this piece of evidence is highly speculative and, even more the reasoning displayed by Makoye is based on wrong premise. In the acknowledged absence of brake and/or tyre marks is it not possible, it may be asked, that the C appellant could have covered the distance of 66 feet, or even more for that matter, while driving at 15 kilometers per hour or even less? If the answer is in the affirmative - Which, in all the circumstances of the case it could jolly well be - then can that speed be described as high? No. Surely not. D

The learned Resident Magistrate ended his consideration of the issue of speed by saying:

'I will therefore be excused if in the circumstances I am permitted to hold that the accused speed was high'. E

With respect, the learned Resident Magistrate can neither be excused for nor permitted to so hold. This is because there is not even a grain of admissible and credible evidence or any other

material from which it can legitimately be concluded F that the speed at which the bus was being driven by the appellant at the time of the accident was high.
It is conceded that speed, per se, is an element of danger. Its proof, however, is a matter of evidence of which there is G none in the instant case. No wonder the Prosecution themselves did not include speed in the charge as an act or one of the act and/or omissions which they would rely upon to prove dangerous driving.
On my evaluation of the evidence and, as afore intimated, in so far as the appellant had the right of way and there was no traffic ahead and in the absence of evidence of a departure from the standard of driving expected of a reasonably prudent H driver the mode of driving adopted by the appellant before and/or at the time of the accident cannot be faulted. This appeal, therefore, has merit and it is hereby allowed. The conviction is quashed and the sentence and order of disqualification imposed thereon and made as a result thereof are accordingly set aside. I
1986 TLR p26
A It is further directed that unless the appellant is being held for some other lawful purposes he is to be set at liberty forthwith.
Appeal allowed.
1986 TLR p26
B
[zRPz]IBRAHIM KUSAGA v EMANUEL MWETA 1986 TLR 26 (HC)

Court High Court of Tanzania - Tanga
Judge Kapoor Ag J

C
6 April, 1984:
(PC) CIVIL APPEAL 10 OF 1983
Flynote
D Administration of Estates - Jurisdiction - Powers of Primary Courts in administration of estates matters - S.15(1)(c) of the Magistrates Courts Act, 1963.
-Headnote
A primary court heard matters relating to grant of administration of estates and proceeded to distribute the property of E the deceased. Among the properties concerned was a partnership property. On appeal the High Court stated the law concerning administration matters before Primary Courts.
F Held: (i) A Primary Court may hear matters relating to grant of administration of estates where it has jurisdiction, i.e., where the law applicable is customary law or Islamic law;
(ii) a Primary Court ought not to distribute the estate of the deceased; that is the job of an administrator appointed by court;
G (iii) partnership property is not covered under customary law or Islamic law.
Case Information
Order accordingly.

H No case referred to.

[zJDz]Judgment

D.N. Kapoor, Ag. J.: Appellant had instituted Administration proceedings in respect of the estate of late Issa s/o Kusaga being 'Shauri la Mirathi Na. 37/1981' in the Primary Court of Dochi. I

1986 TLR p27

KAPOOR Ag J

A The estate of the deceased included Motor Vehicles, Bank Account, Houses and partnership property. The partnership was known as Kusaga Brothers. This partnership was registered with the Registrar of Business Names under No. 16551 dated 1st March 1962. The total value of the estate exceeded shs.100,000/=

B Time and again I have come across appeals originating from Primary Courts in Administration matters where the Primary Court Magistrates have exceeded their jurisdiction. This is one such matter where the Primary Court acted without jurisdiction. Even the District Magistrate failed to rectify the error.

C In the instant case the Primary Court received evidence in respect of the deceased's estate, including partnership property and proceeded to distribute the entire estate in its judgment.

I consider this is a proper case where I would endeavor to state the law concerning Administration matters before the Primary Courts. D

Powers of the Primary Court are derived through the provisions of Section 15 (1)(c) of the Magistrates Courts Act No.55 of 1963:

E "Section 15(1)(c) The practice and procedure of Primary Courts shall be regulated and, subject to the provisions any law applicable for the time being in force, their powers limited -

(c) in the exercise of their jurisdiction in the administration of estates, by the provisions of the Fifth Schedule to This Act," F

The Fifth Schedule to the Magistrate's Court Act is reproduced hereinbelow, in part -

THE FIFTH SCHEDULE G

PART I

"Powers of Primary Courts in Administration case.

H 1 (1) The jurisdiction of a Primary Court in Administration of deceased 'estates, where the law applicable to the administration or distribution of, or the succession to, the Estate is customary law or Islamic law, may be Exercised in case where the deceased at the time of his death, had a fixed place of abode within the local limits of the Court's jurisdiction: I

1986 TLR p28

A Provided that nothing in this paragraph shall derogate from the jurisdiction of a Primary Court in any proceedings transferred to such court under Part V of this Act.

2. A primary court shall not appoint an administrator of a deceased's estate - B

(a) in respect of an Estate to which the provisions of the Probate and Administration 1961 are applied or of which a grant of administration has been made under that ordinance, or of which the administration is undertaken by the Administrator - C General's Ordinance;

(b) Where the gross value of the estate does not exceed Shs.1,000/=, unless the court is of the opinion that such an appointment is necessaryto protect the creditors or beneficiaries. D

3. A primary Court upon which jurisdiction in the administration of deceased's estates has been conferred may -

E (a) Either of its own motion or on application by any person interested in the administration of estate, appoint one or more persons interested in the estate of the deceased to be the administrator or administrators thereof, and in selecting any such administrator, shall unless for any reason it considers it inexpedient so to do, have regard to any wishes which may F have been expressed by the deceased;

(b) Either of its own motion or on application by any person interested in the administration of the estate, where it considers G that it is desirable so to do for the protection of the estate and the proper administration thereof, appoint an officer of the court or some reputable and impartial person able and willing to administer the estate to be administrator either together with or in lieu of an administrator appointed under sub-paragraph (a), H

(c) revoke any appointment of an administrator for good and sufficient cause and require the surrender of any document evidencing his appointment; I

1986 TLR p29

KAPOOR Ag J

A (d) Make orders as to the administration of the estate, and, in particular but without prejudice to the generality of the foregoing, as to the law to be applied in the distribution of the estate and as to advertising or creditors;

B (e) require an administrator to sign an undertaking to administer the estate faithfully;

(f) require an administrator to give security for the due administration of the estate; C

(g) make orders as to the payment of share in the estate of any minor or other person under a disability to relative or other suitable person for the maintenance or otherwise for the use of such minor or person under a disability, or with the consent of the Public Trustee, to the Public Trustee; D

(h) make any order which it has power to make under this Act in cases of a civil nature.

E The Primary Courts (Administration of States) Rules were published under Government Notice No. 49 of 1971. These Rules prescribe the entire procedure to be followed by the Primary Courts in Administration of Estates. Rule 8 of the Rules G.N.49 of 1971 stipulates the matters that the primary court may hear and decide.

The effect of the above quoted provisions touching and affecting Administration of Estates in Primary Courts can be F summed up as follows:

1. A primary court has jurisdiction to hear an Administration Estate's matter PROVIDED the law applicable to the G administration or distribution or the succession to the estate of the deceased is 'CUSTOMARY LAW or ISLAMIC LAW'

2. After hearing the application, the Primary Court may grant Administration to one or more persons or to an officer of the Court. H

3. The Primary Court may hear and decide matters relating to:

(a) Whether deceased died testate or intestate and all matters relating to the will of the deceased.

(b) ascertain all property belonging to the estate and all persons who are entitled under the will or upon intestacy. I

1986 TLR p30

KAPOOR Ag J

A (c) ascertain debts if any and consider questions relating to sale or otherwise dispose of the property of the deceased for paying debts, if any and distribution of the estate to heirs and beneficiaries.

B In my opinion a Primary Court may hear matters relating to grant of Administration of estates where it has jurisdiction (i.e. where the law applicable is customary law or Islamic Law). After hearing the application for grant of Administration the Primary Court ought to decide all matters relating to and affecting the grant and after such decision the court ought to C grant Administration to the applicant or make an order refusing grant. It would follow therefore that a Primary Court ought not to distribute the estate of the deceased. That is the job of an Administrator appointed by court.

I appreciate that there may be cases where the property of a deceased person may be in dispute. In such cases all those D interested in determination of the dispute or establishing ownership may institute proceedings against the Administrator or the Administrator may sue to establish claim of deceased's property.

The law regarding institution of civil claims has not been changed by the Administration of estate enactments. It only E provides a machinery whereby a legally recognized person is placed in the place of a deceased person in all matter relating to the deceased's estate.

To illustrate the point how some Primary Courts have entertained matters outside their jurisdiction, I would quote an F example: "Wife of a deceased person applied for Administration of her husband's estate. The primary court opened an Administration file. During the course of the hearing the applicant (wife of deceased) told the court all the property owned by the deceased. In this list there was a piece of land whose ownership was disputed. Someone else had G occupation of that piece of land. The primary court magistrate called that person to give evidence in these proceedings. That occupier came to court and gave evidence to the effect that the disputed piece of land was his property. The H primary court magistrate gave judgment for the wife of the deceased and ordered that third person to vacate the disputed land.

That third person appealed to the District Court and finally the parties reached the High Court. I quashed the proceedings and ordered fresh proceedings before the appropriate Courts."

I The most important point to note from the above quoted example is that a person who was not party to the suit had to drag

1986 TLR p31

A himself up to the High Court to establish his claim in a matter that did not concern him directly in the original proceedings before the primary court.
In the instant case the Primary Court had no jurisdiction to distribute the estate of the deceased for many reasons apart from the fact that the Primary Court ought not to do the work of the Administrator. The estate of the deceased included B property which was held under a Registered Partnership No. 16551 dated 1st March, 1962. Partnership property is not covered under Customary Law or Islamic Law. Even the District Court would have no jurisdiction to entertain the Administration Suit as the property value exceeded shs.100,000/=. The present respondent was not a party in the C original proceedings.
For these reasons I quash the proceeding of both Courts below and order that the interested parties may lodge their claims before appropriate court having jurisdiction to entertain the claim. D
I order that each party bear its own costs of this appeal and costs of the courts below.
Order accordingly.
1986 TLR p31
E
[zRPz]FRANCIS ANDREW v KAMYN INDUSTRIES (T) LTD 1986 TLR 31 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Bahati J

10 April, 1986
CIVIL CASE 88 OF 1982 F
Flynote
G Civil Practice and Procedure - Pleadings - Interest prior to the filing of the suit - Matter of substantive law - Must be pleaded in the body of the plaint.
Civil Practice and Procedure - Jurisdiction - Pecuniary jurisdiction of the High Court - Claim shown in the plaint is shs.14,549 - Prayer to the plaint shows sh. 8,713/86 is claimed as interest prior to the filing of the suit - Whether High Court has jurisdiction to entertain such a suit. H
-Headnote
The plaintiff filed a suit in a High Court against the defendant. The plaint showed that the amount claimed was shs.14,549/=. At the prayer to the plaint the plaintiff had tucked in shs.8,713/86 being interest from July, 1975 to I January, 1981, i.e., a period of 7 years
1986 TLR p32
BAHATI J
A prior to the filing of the suit. Counsel for the defendant raised the
point of jurisdiction on the part of the High Court arguing that the amount claimed, shs.14,549/= was below shs. 20,000/= and therefore the Court lacked jurisdiction to entertain the suit. The amount of shs.8,713/86 shown at the prayer to the plaint did not form part of the plaint unless it appeared in the body of the plaint.

Held: (i) Interest prior to the filing of the suit is a matter of substantive law and it must be specifically pleaded;

(ii) the amount claimed in this suit is only shs.14,549/= which is below the jurisdiction of the High Court.

Case Information

Suit dismissed.

Case referred to:

1. Yusuf Abdallah v French Somaliland Shipping Co. [1959] E.A. 25

El-Maamry, for the plaintiff.

Uzanda, for the defendant

[zJDz]Judgment

Bahati, J.: Mr. Uzanda learned counsel, for the defendant raised the point of jurisdiction on the part of this court arguing that since the amount claimed is below Shs.20,000/= this court had no jurisdiction to entertain the suit. Mr. Uzanda pointed out that the value of the plaintiff's claim was shown in paragraph 5 of the plaint which was Shs.14,549/=, but at the prayer to the plaint the plaintiff had tucked in Shs.8713/86 being interest from July, 1975 to January, 1981. This is interest of 7 years prior to the filing of the suit. Mr. Uzanda submitted further that the law relating to interest prior to the filing of the suit was clear namely that interest prior to the filing of the suit is a matter of substantive law and not procedural law and therefore such interest must be pleaded in the body of the plaint. It cannot be tucked in the prayer like interest after filing the suit. Mr. Uzanda referred the court to Mulla - Code of Civil Procedure - 12th Edition page 145 and also the AIR commentaries 6th edition volume 1 pg 6121. Mr. Uzanda submitted that the plaintiff had not pleaded the sum of 8713.86 in the plaint nor was it known on what basis he was claiming it. Interest prior to filing of the suit, Mr. Uzanda submitted, could come under three headings namely - by agreement, by mercantile practice, or by statute. But in the plaint this was not shown, he said. He submitted

A further that even if the case were to be heard on its merits it would be impossible for the court to award such interest because having not been pleaded, it could be argued. Mr. Uzanda concluded that the plaintiff had asked the court to adjudicate on Shs.14,549/= which is far below the pecuniary jurisdiction of the court; and as such the suit should be dismissed with costs. B

With regard to the counter claim, Mr. Uzanda argued that it had been filed nearly 2 years ago and no defence to it had been made by the plaintiff nor was there any application for filing any defence. He prayed that judgment be entered for the defendant as prayed in the counterclaim. C

In reply to this argument Mr. El-Maamry, learned counsel for the plaintiff asked for an adjournment to prepare his reply and his prayer was granted. When the matter came up for hearing about a month later, Mr. El Maamry submitted that the relief paragraph was part of the plaint and that although there was no paragraph claiming interests, interest was D properly

claimed in the relief. In the alternative, Mr. El-Maamry applied orally to amend the plaint to incorporate a paragraph on the interest before filing the suit.

With regard to the defence to the counterclaim, Mr. El-Maamry conceded that he had not yet filed one nor asked for extension of time to do so. But he applied for leave to file it now because it was ready. E

Mr. Uzanda, replying to Mr. El-Maamry's arguments said that his main argument which was that the interest prior to the filing of the suit is a matter of substantive law and must be specifically pleaded because there are several grounds on F which it can be claimed. He said that this argument had not been answered by his learned friend. He went on to elaborate that the interest might be a subject of an agreement or based on mercantile usage or based on a statute. In G each case the basis of the interest had to be specifically pleaded. Mr. Uzanda cited yet another authority on this point namely Yusuf Abdallah v French Somaliland Shipping Co. [1959] E.A.25 at 28

With regard to the argument of Mr. El-Maamry that the relief is part of the pleading, Mr. uzanda submitted that the relief is based on the pleading and it is not part of the pleading. Mr. Uzanda referred the court to Mulla on Code of Civil H Procedure, 12th Edition pg. 96 where it is stated that a relief not based on the pleading should not be granted. With regard to the application by Mr. El-Maamry to amend the plaint, Mr. Uzanda submitted that as the issue of jurisdiction I had been raised it had to be decided first. If the Court

A finds that it has no jurisdiction then it cannot have power to do anything else except to dismiss the suit. Finally with regard to the application by Mr. El-Maamry for leave to file a defence to the counter claim, Mr. Uzanda submitted that no reasonable ground had been given why even an application for time to file the defence was not made almost two years since the counterclaim was filed. He therefore prayed the suit B to be dismissed with costs and the Counterclaim to be either allowed with costs or the defendant be allowed to prove it ex-parte by affidavit.

The 1st issue involved here is one of jurisdiction. The Plaintiff claims that the court has jurisdiction whereas the defendant C claims otherwise. Having gone through Mulla on the Code of Civil Procedure, 12th Edition on page 145, I have come to agree with Mr. Uzanda that interest prior to the filing of the suit is a matter of substantive law and it must be specifically pleaded. In this case the interest from July, 1975 to January, 1981 has not been pleaded anywhere but, in the words of D Mr. Uzanda, it has been tucked in the prayer for relief. I agree with Mr. Uzanda that as it is necessary to plead on what basis the interest sought is being claimed; and there are three heads on which such interest may be based, namely E mercantile practice, statute, or implied agreement or contract, the interest shown in the relief cannot be allowed to stand so as to swell the amount claimed from 14,549/= to over 20,000/=. The only relief which can be claimed is what has F been pleaded in the plaint. It follows therefore that the amount claimed in this case is only Shs. 14,549/= which is below the jurisdiction of this

Court. In terms of Section 13 of the Civil Procedure Code this court has no jurisdiction to try the suit.
Mr. El-Maamry applied orally to be allowed to amend the suit. I do not think that such leave can be granted here G because the plaintiff was aware of the defect in the plaint through the written statement of defence but he chose to do nothing. It would not be just to the defendant to grant such leave.
Finally with regard to the counter claim, there cannot be any question of filing a defence to it at this late hour as the plaintiff did not do so for almost two years nor did he apply for extension of time to file any defence. The defendant is H granted leave to prove the counterclaim ex-parte by the affidavit as prayed. The plaintiff's suit is therefore dismissed with costs.
I Appeal dismissed.
1986 TLR p35
A
[zRPz]K.H. MARIRI v O. JAZZA 1986 TLR 35 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mnzavas JK

4 March, 1986
CIVIL APPEAL 42 OF 1985
Flynote
B Landlord and Tenant - Regional Housing Tribunal - Jurisdiction - S.11(2) of the Rent Restriction Act, 1984
-Headnote
The chairman of a Regional Housing Tribunal, sitting alone, heard a dispute between a landlord and tenant. C
Held: (i) The jurisdiction of a Regional Housing Tribunal must be exercised by the Chairman sitting with two other members of the Tribunal;
(ii) the proceedings and orders of the Tribunal comprising the Chairman alone were a nullity. D
Case Information
Order accordingly.
No case referred to. E
[zJDz]Judgment
Mnzavas J.K.: On 11/10/85 the appellant/applicant complained before the Regional Housing Tribunal alleging that the respondent had let his house (in which the appellant was one of the tenants) to members of the Tanzania F Peoples Defence Forces who, according to his testimony before the tribunal were threatening to evict him and his family from the house. He asked the tribunal to intervene and save him from being evicted from the premises.

G Before the tribunal the respondent admitted having let the said premises to, (according to him) officers of J.K.T. But he said that he did so after he had given notice to the tenants and asked them to quit the premises within an agreed date; and that all the other tenants, except the appellant, had already complied with the notice and have vacated their rooms. H He however further told the tribunal that he was ready to find another room for the appellant in an adjacent building over and above allowing him retaining one of his two rooms in the house. He asked the tribunal to grant him time to sort out the matter with the appellant. Thereupon the tribunal said: I

1986 TLR p36

MNZAVAS JK

A ORDER: Prayer granted, matter be settled by the parties themselves first.

Apparently the parties failed to reach a settlement and they had to appear again before the tribunal on 1/11/85. After hearing both parties the tribunal made the following order: "Tenant to surrender the two rooms before 25/11/85 and shall B accept the other one kept by L.L. The landlod to assist him look for alternative room before that date". There was yet another order (type written) dated 5/12/85 which order was more or less similar to the previous order dated 1/11/85. C Dissatisfied by the tribunal's orders the appellant has come to this Court.

Legally an aggrieved party in dispute between landlord and tenant before a Regional Housing Tribunal appeals first to the Housing Appeal Tribunal before coming to the High Court. However it would appear that the Appeals Tribunal has not D yet been formed and it seems that is why the appellant has directly come to this Court. Be it as it may my reading of the proceedings in the Regional Housing Tribunal shows that the mandatory provisions of section 11 of the Rent Restriction Act, 1984 were not complied with. The section says inter alia: E

The jurisdiction of the Tribunal shall be exercised by the Chairman sitting with two other members of the Tribunal - Section 11(2).

F Nowhere in the handwritten proceedings is it shown that the learned Chairman, Mr. Mtenya, sat with members of the Tribunal and the orders arrived at were clearly a nullity.

The proceedings and the order of the Tribunal are therefore hereby set aside. The status quo before the matter came G before the Tribunal is restored. The Regional Housing Tribunal is to hear the dispute de novo and comply with the mandatory provision of section 11 of the Rent Restriction Act, 1984.

Costs to follow the event.

Order accordingl H y.

1986 TLR p37

A

[zRPz]NATIONAL MILLING CORPORATION v MUBIGI WAJANGI 1986 TLR 37 (HC)

Court High Court of Tanzania - Mwanza

Judge Mwalusanya J

4 July, 1987
CIVIL APPEAL 4 OF 1986 B
Flynote
Limitation - Law of Limitation - Suit based on contract - Cause of action arose in 1976 - Suit filed in 1984 - Criminal proceedings instituted against complainant relating to the subject-matter of the contract in 1979 - Acquittal - When cause of C action arose - When time began to run.
-Headnote
The appellant had a judgment delivered against it in favour of the respondent in respect of a contract for milling maize into flour on behalf of the appellant. In 1976 the appellant refused to pay the respondent for services rendered alleging that D the former had stolen some of the maize-flour. In 1979 a criminal case was filed against the respondent in which he was acquitted. In 1984 the respondent filed a suit against the appellant claiming payment for services rendered in 1976. The E appellant argued that the suit was time-barred because the period of limitation began to run in 1976.
Held: (i) It was only after the acquittal and when appellant still refused to pay that the cause of action arose and only then did the period of limitation start to run; F

(ii) as the acquittal was in 1979 and the suit was filed in 1984, it was within six years and therefore the suit was in time and not time-barred.
Case Information
Appeal dismissed. G
No case referred to.
Rugarabamu, for the appellant H
Butambala, for the respondent
[zJDz]Judgment
Mwalusanya, J.: The appellant corportion National Milling Corporation (Musoma Branch) had a judgment delivered against it by the District Court of Musoma in the sum of Shs. 194,346/=. The present respondent I Mubigi s/o Wajangi was
1986 TLR p38
MWALUSANYA J
A the plaintiff. Later execution proceedings was issued for payment of a total of Shs.658,776/=. One of the points taken on appeal is that the execution proceedings for the untaxed costs amounting to over five times the decretal amount was irregular. Counsel for the respondent Mr. Butambala conceded that much. It was quite improper B for the learned Resident Magistrate to issue execution proceedings for Shs. 658,776/= which had not been taxed by the Taxing Master as is required under Rule 61 of the 'Advocate's Remuneration and Taxation of Costs Rules' as amended by GN.89 of 1962. The Resident Magistrate as a Taxing Master at the District Court level should have taxed the bill of C costs first before issuing execution proceedings. On this aspect of the case we allow the appeal and quash the execution proceedings.
The next point is as to whether the suit was time-barred or not. That depends on as to when the period of limitation D started to run. This was a contract that was made in 1975 for milling maize into maize-flour on behalf of the N.M.C. In 1976 it is said that the appellant corporation

refused to pay the respondent for services rendered. The appellant refused payment on the ground that he had actually stolen some of the maize-flour that he was supposed to deliver to them after E milling. He was reported to the police and respondent was charged in Criminal Case No. 115/1979 wherein he was acquitted. The respondent did not file this suit till 7/9/1984. It is conceded by both parties that the limitation period for F this type of suit is six years as per Part I of the First Schedule of the Law of Limitation Act No. 10 of 1971. Mr. Rugarabamu for the appellant has argued that the period of limitation started to run in 1976 and so by 1984 the respondent was time-barred. On the other hand counsel for the respondent Mr. Butambala argued that the period of G limitation did not start to run until 1979 when respondent was acquitted. But Mr. Rugarabamu argued that the criminal trial was not a disability as respondent was free to file the civil case.

The trial court was obviously unhelpful when it held that the law of limitation should not be applied if it produced unjust results to any of the parties. The trial magistrate patently misdirected himself on this matter. A court is a court of law and H not a justice. So judges and magistrates are enjoined to apply the law as they find it even if they feel it is unjust. As one of celebrated English Chief Justices, Lord Mansfield, had once said, the courts should apply the law even if the sky I will fall. If the law is unjust it is for Parliament to amend it but not for the court to refuse to apply it.

1986 TLR p39

MWALUSANYA J

A In my view the period of limitation did not start to run until the acquittal of the respondent. This is because the appellant was not then denying liability but wanted to ascertain as to whether the respondent was not under any liability to them so that they could off-set that sum from what they owed the respondent. In fact that is what the appellant B corporation had endorsed on the back of Exh. A through one of its officials. It is only after the acquittal and when appellant still refused to pay that the cause of action arose and only then did the period of limitation start to run. As the acquittal was in 1979 and the case was filed in 1984 then it was within six years. Therefore I hold that the suit was in time and not time-barred. C

Finally the appellant argued at the hearing of the appeal that the respondent had failed to prove at the trial as to how much of the relevant contract he had performed so as to deserve a sum of Shs.194,346/= In my view the respondent had already proved that much on a balance of probability. That was a collorary from the outcome of the criminal case. In the D criminal case it was argued on behalf of the appellant that respondent had received 500 bags of maize for milling. He was supposed to send back 484 bags of maize-flour but instead it is said he only returned 324 bags of maize-flour and so 160 bags of maize were stolen. The criminal court in its judgment Exh.B found as a fact that respondent had delivered all E 484 bags of maize-flour to the go-down of N.M.C. Therefore that respondent had already fulfilled or performed his part of the contract was a non-issue at the subsequent civil case. After the criminal trial it was a foregone conclusion that F the respondent had performed his part of the contract. The appellant corporation is therefore liable in law.

In the upshot the appeal is dismissed with costs.

G Appeal dismissed.
1986 TLR p40
A
[zRPz]KAMPUNI YA UCHUKUZI MWANZA LIMITED v GABRIEL C. RIWA 1986 TLR 40 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

24th March 1987.
MISCELLANEOUS CIVIL APPEAL 19 OF 1986 B
Flynote
Civil Practice and Procedure - Attachment and Sale (Broker and Fees) Rules - Court broker paid more than the value claimed in the suit - Whether proper
-Headnote
C The respondent, a court broker, was awarded shs. 2,125,000/= as costs payable to him under the Attachment and Sale (Broker and Fees) Rules, G.N. 298/1964 as amended by G.N. 105/1984. This amount was by far more than the value of the attached property which was Shs. 250,000/=. The appellant applied to the High Court for revision of D computation of the amount which was worked out by the Resident Magistrate's Court.
Held: There is no material error on the merits of the case as conducted by the trial magistrate. E
Case Information
Application dismissed.
Case referred to.
l. Matemba v Yamulinga [1968] E.A. 643. F
J. Lyimo, for the applicant
Kahangwa, for the respondent.
[zJDz]Judgment
G Mwalusanya, J.: This is an application for revision filed by the applicant Kampuni ya Uchukuzi Mwanza Ltd. (KAUMA) against the respondent Gabriel C. Riwa concerning the judgment of the Resident Magistrate's H Court Mwanza which awarded the said respondent shs. 2,125,000/= as costs payable to him as a Court-broker under the Attachment and Sale (Broker and Fees) Rules GN. 298/1964 as amended by GN. 105/1984. The application for revision is under s. 44(1)(b) of the Magistrate's Courts Act No. 2 of 1984. I
1986 TLr p41
MWALUSANYA J
A For the respondent Mr. Kahangwa took the first point that the application is misconceived because under s.79(l) of the Civil Procedure Code Act No. 49 of 1966 the powers of revision of the High Court are restricted to matters of jurisdiction only. And he cited the decision of this court in Matemba v Yamulinga [1968] E.A. 643(T) by Mustafa J. B For the applicant Mr. Lyimo

conceded that the application is based on merits of the case and not on the question of jurisdiction.

But he contended that nevertheless the application was in order because under s.44(1)(b) of the Magistrate's Courts Act there is a section that provides that the High Court may revise proceedings of subordinate courts: C

'if it appears that there has been an error material to the merits of the case involving injustice'.

And on this point I agree with counsel for the applicant Mr. Lyimo that the High Court has been given additional powers D under the Magistrate's Courts Act over and above those contained in the Civil Procedure Code. This is buttressed by s.79(2) of the Civil Procedure Code which provides in black and white thus: E

Nothing in this section shall be construed as limiting the High Court's power to exercise revisional jurisdiction Lunder the Magistrate's Courts Act.

F Therefore that section makes it crystal clear that the High Court has additional powers of revision under the Magistrate's Courts Act.

So the crucial point to decide in this application is as to whether there is some material error on the merits of the case as conducted by the trial magistrate. This calls upon this court to construe Para 1 and 2 of the Second Schedule of the G Attachment and Sale (Brokers and Fees) Rules GN. 298 of 1964 as amended by GN.105 of 1984. These two paragraphs read:

H Para 1: For attachment or taking possession of movable property and keeping possession of the same for 15 days or part thereof, when the estimated value of the property (in accordance with the executing officer's inventory furnished under Rule 5) -

(a) Does not exceed shs. 400/= -shs. 60/=. I

A (b) Exceeds shs. 400/= - shs. 60/= for the first shs. 400/= and 10/= for each subsequent shs.1000/= or part thereof.

Para 2: For keeping possession of movable property after the first 15 days, for every shs. 100/= of the estimated value of the B property and for each day or part thereof - shs.5/=, but so that the fee shall not be less than shs.2/= nor more than shs.20/= per day.

C Those are the contents of the two paragraphs that were pertinent to the matter in issue at the trial.

Now it was common ground at the trial that the value of the attached property was shs.250,000/= Computation of the D fees payable to the Court-broker under para 1 of the Second Schedule of the Rules did not generate any controversy, and this was for the first 15 days. It was computed thus:

(a) For the first shs.400/= - shs.60/=

E (b) For the (shs.250,000/= - shs. 400/=) shs. 249,600/= the formula is:

shs. 249,600 x 10 = shs. 2,020,000/=

F Thus the total fees payable to the Court broker under para one was shs. 60 + shs. 2,496/= and that comes to shs. 2,556/=.

The main contention was centred under para 2 and of the Rules. As for the number of days the property attached was G under custody it was conceded by both parties that it was 419 days. Now if you minus the first 15 days paid under para one above, you remain with 404 days. The trial court was of the view that the correct formula for the computation of fees payable to the Court-broker under Para 2 was:

H $$\frac{250{,}000 \times 2 \times 404}{100} = \text{shs. } 2{,}020{,}000/=.$$

The trial magistrate said that the sum payable could not be less because the fees were formulated by the legislature to I enable the Court-broker to manage to keep the attached property in safe

A custody for example enabling him to pay a watchman to look after the property.

Mr. Kahangwa counsel for the respondent at the hearing of this application supported that contention.

However at the trial and at the hearing of this application counsel for the applicant Mr. Lyimo strongly objected to that B formula adopted by the trial magistrate in computing the fees payable to the Court-broker under Para 2 of the Rules. He pointed out that the correct formula was that: You divide by 100 the value of the property and then multiply by five. You then get (shs. 12,500/=) what would otherwise be payable in one day if there was no proviso. He went on to say that by virtue of the proviso the amount payable per day is limited to a minimum of shs.2/= and a maximum of shs.20/=. In this C case Mr. Lyimo chose to play the maximum rate of shs.20/= and so concluded by saying that for 404 days the fees payable would be 20 x 404 = shs.8,080/= only. And plus shs.2560/= from the first paragraph you get a total of D shs.10,636/= which would be payable to the Court-broker. Mr. Lyimo also argued that awarding shs.2,125,000/= to the Court-broker would be ridiculous and anamolous as it would be more than the value of the amount claimed in the suit. E

In the final analysis the issue posed for construction by this court is simply as to whether the phrase in the Rules 'the fee shall not be less than shs.2/= nor more than shs.20/= per day' pertains to the whole estimated value of the property or to the shs.100/= only.

It is a settled rule of interpretation that where the language of a statute is clear and explicit the courts must give effect to it F whatever may be the consequences, for in that case the words of the statute speak the intention of the legislature - see Graies on Statute Law 11th Ed. at p. 64. For that reason I cannot accept what was contended by Mr. Lyimo on behalf G of the applicants that the fees payable to a Court-broker cannot by any standards exceed the amount claimed in the suit.

In my considered opinion whether the fees payable to the Court-broker exceed the claim in the suit is of little importance H so long as, that is the intention of the legislature. Now reading the whole of para 2 of the Second Schedule very closely, one cannot fail to see that the proviso stating that a minimum fee of shs.2/= and a maximum fee of shs.20/= is payable, pertains only to

the shs.100/= of the value of the property and not to the value of the whole property. To paraphrase that paragraph, it reads: 'For every shs.100/= of the estimated value of the property you pay shs.5/= I
1986 TLR p44
A but so that the fee shall not be less than shs. 2/= nor more than
shs.20/= per day. The proper construction therefore of that phrase would reveal that it pertains to shs.100/= only and not to the value of the whole property and so I hold.
B And on policy grounds it would also appear that the trial magistrate made a valid point. When he took the rate of shs.2/= as the minimum fees payable for every shs.100/=, it turned out that per day the court-broker was paid shs.5,000/=. That is not an extraordinary huge sum of money in these days of inflation as to make someone raise eyebrows. I agree with the trial magistrate that to keep safe custody of an item like a vehicle is an expensive undertaking. C On my part I have no qualms over the computation of the fees payable.
In the event the application fails as I find no error in the ruling of the trial magistrate to warrant interference by this court. The application is accordingly dismissed with costs. D
Appeal dismissed.
1986 TLR p44
E
[zRPz]JOSEPH JOHN MAKUNE v THE REPUBLIC 1986 TLR 44 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Nyalali CJ, Makame JJA, Kisanga JJA.

Flynote
F Criminal Practice and Procedure - Economic crime committed before the Economic and Organized Crime Control Act, 1984 came into force - Case then pending with the Police - Whether accused could properly be charged before an Economic Crimes G Court when the Act became operational.
Economic and Organized Crime Control Act, 1984 - Interpretation - The word "ruling" in s.2 of the Act -Whether to be given a restrictive meaning.
H Criminal Law - Evidence - Defence evidence raises serious doubts as to the guilt of the appellant.
Evidence - Standard of proof -Prosecution evidence is not strong and defence evidence raises serious doubts as to the guilt of the appellant.
I Sentencing - Judge alone sentencing the appellant - Whether proper - Economic and Organized Crime Control Act, 1984, s.16.
1986 TLR p45
KISANGA JA
-Headnote

A The appellant was charged before an Economic Crimes Court. The offence with which he was charged was committed before the Economic and Organized Crime Control Act, 1984 became effective but the case was pending with the police under the Penal Code. When Act became operational the appellant was charged under it. Counsel for B the appellant argued that it was not proper to charge the appellant under the Act because it had no provision for retrospective operation. The High Court ruled that it was proper to charge the appellant under the Act. Counsel's application to appeal against this ruling was rejected and the judge sought to give a restricted meaning to the word "ruling". This meaning would exlude rulings which are of interlocutory nature. C

The Court of Appeal considered the evidence adduced by both parties. It also addressed itself to proper constitution of an Economic Crimes Court when passing sentence.

D Held: (i) There was nothing in law to prevent the Police from altering the charge, originally under the Penal Code, and to proceed under the Act if they thought that the facts disclosed an offence under the Act;

E (ii) the word "ruling" in section 2 of the Economic and Organized Crime Control Act, 1984, should be given plain and ordinary meaning to include interlocutory ruling;

(iii) the evidence adduced in support of the charge was not at all strong, and the appellant's defence, properly considered, raises serious doubts as to his guilt; F

(iv) section 16 of the Economic and Organized Crime Control Act 1984 requires that the issue of sentence be decided by majority of the members of the Court. The Judge erred in proceeding alone to determine that issue.

Case Information

Appeal allowed. G

No case referred to.

S.A. Masati, for the appellant H

Shio, for the respondent

[zJDz]Judgment

4th July, 1986 Kisanga, J.A.: The appellant was convicted in a majority judgment under the Economic and Organised I Crime Control Act for occasioning loss to a specified authority, and was

A sentenced to 3 years' imprisonment, with an order for compensation in respect of the loss caused to the specified authority. He has now appealed against both conviction and sentence.

Very briefly the facts as found by the Economic Crimes Court were that the appellant was a bank official who at the B material time was a signatory to the encashment of cheques of over Shs. 10,000/=. He duly authorised the encashment of two cheques each worth Shs. 125,000/=. He authorised this at Mahenge where the drawer of the cheques, one Isaac Jacob @ Isaack Shinyanga had no bank account and when the cheques were later referred to Igunga where he had an account, there were no funds to meet the payment thereof. The prosecution, therefore, charged the appellant with C occasioning loss to the National Bank of Commerce in that he was

careless in not clearing the cheques with the Igunga branch before authorizing payment of them at Mahenge. The appellant's defence was that he did not clear the cheques D because there was no telephone communication between Mahenge and Igunga branches of the Bank but that he, as branch Manager, used his discretion to authorise payment after satisfying himself that the drawer of the cheques was creditworthy. As intimated earlier the court was divided, the chairman and one lay member recording a verdict of guity E with the remaining lay member dissenting.

In this appeal the appellant is represented by Mr. S.A. Masati who had also acted for the defence at the trial. Before us the learned counsel filed seven grounds of appeal but at the hearing he abandoned ground three and argued the rest. For F convenience the first three grounds may be taken together. He alleges before us, as indeed he had alleged before the Economic Crimes Court, that the charge was defective in as much as it charged his client with an offence which was committed in July, 1984 before the Economic and Organized Crime Control Act came into operation in September that G year, and yet there was no provision in the Act for retrospective operation. It is apparent that the case falls within the provisions of section 65(4) of the Economic and Organized Crime Control Act which in the rest of this judgment will be referred to simply as the Act. That sub-section says that: H

65(4). Where a case is pending with the police or before the Tribunal but it may not be heard by the Tribunal as a result of the operation of the preceding provision of this section, proceedings in respect of it shall be instituted before the Court, subject to this I Act.

1986 TLR p47

KISANGA JA

A Mr. Masati conceded that when the Act came into operation the case was pending with the police, and it is clear that it could not be heard by the Tribunal because the appellant was never charged before that Tribunal. But counsel contended that at the time of the commencement of the Act his client was then charged under the Penal Code with the offence of stealing by public servant. By this we understood him to say that the police should have continued the proceedings B against his client under the Penal Code. We could see no basis for that argument. We think that once the case was pending with the police at the commencement of the Act, there was nothing in law to prevent the police from altering the C charge, originally under the Penal Code, and to proceed under the Act if they thought that the facts disclosed an offence under the Act. We are therefore satisfied that the case was properly made the subject of a charge under the Act and we can find no merit in the complaint.

As intimated earlier, this complaint had been the subject of a preliminary objection at the trial but the Court overruled it. D Whereupon the learned counsel sought to appeal against such refusal but he was refused leave to do so. That refusal is now made a ground of complaint before us. Having regard to the view which we have just expressed on this matter, we E are satisfied that the Economic Crimes Court was quite justified to overrule the preliminary objection and we can see no merit in this ground of complaint either.

The refusal to grant leave to appeal against that ruling, however, appears to present some difficulty. Mr. Masati stated that in seeking to appeal against the ruling he was relying on the provisions of section 61 of the Act. That section F provides that:

61. A person aggrieved by a decision of the Court may appeal to the Court of Appeal of the United Republic in accordance with established law in that behalf. G

Under section 2 of the Act the word "decision" is defined to include

...a judgment, finding, acquittal, conviction, sentence or ruling.

H In over-ruling the objection the trial Court stated, inter alia, that the right conferred under s.61 of the Act did not concern every decision of the Court during the trial, but that it applied only to decisions which are final and not interlocutory in nature. It is to be noted that the word "ruling" has not been defined under the Act. I

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KISANGA JA

A The Court, however, took the view that the word is to be given a restricted meaning to exclude rulings which are of an interlocutory nature. The Court gave no reasons for so restricting the meaning of the word, nor can we suggest any. Such a restricted meaning can cause prejudice or injustice to an accused person in some cases, for example where his B objection is sustained on appeal resulting in his discharge or acquittal. In such cases the accused would have suffered unnecessarily the pain of being an accused person, with its attendant consequences, for the whole period between the time of such refusal and the time he is let off on appeal against the final decision. That would be undesirable, and we think C Parliament cannot have intended it. As stated before we can find no justification for restricting the meaning of the word "ruling". We are increasingly of the view that the word should be given plain and ordinary meaning to include interlocutory ruling. The trial Court was therefore unjustified to refuse the appellant's leave to appeal, but we hasten to D add that in this particular case such refusal did not prejudice the appellant because on the view we have taken of the matter, the intended appeal against the ruling would not have succeeded, anyway.

E Again for convenience we take together grounds five and six the gist of which is that the prosecution did not prove the case beyond a reasonable doubt having regard to the appellant's defence. Essentially the evidence implicating the appellant was that he authorized the two cheques without having first cleared them with the Igunga Branch of the bank. It F was undisputed that he had given his authority on 16.7.84 and the cheques were presented at Igunga on 15.8.84, that is about a month later, when it was learnt that the drawer's account had no funds to meet them. But the prosecution G adduced no evidence as to the state of the account as at the date of authorising the cheques. Counsel for the appellant submitted that it is possible that the account had sufficient funds on the date the cheques were authorized but that if the funds were run down only subsequently, then the appellant could not be to blame for it. There was one matter here H which was not quite clear from the evidence. That is the meaning of "clearing the cheques" with the Igunga Branch. We could not be sure whether this merely meant to ascertain whether the drawer's account at Igunga had sufficient funds, or whether it also meant debiting the account at the same time to the extent of the value of the two cheques

or, if not so, to I take any precautions against any withdrawals from the account until presentation and payment at a later date of the two cheques. If it meant

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KISANGA JA

A the former then counsel's submission has merit because, as he says, there might have been enough funds in the account on the material day, but if the funds were depleted only subsequently the appellant could not be to blame for it as there is no evidence as to what precautions, if any, he was required to take against any withdrawals from the account pending presentation and payment of the two cheques. In the absence of a clarification on this point, we think that the charge B cannot safely be said to have been proved sufficiently.

In dealing with the appellant's defence the learned judge and the lay member who recorded the conviction and whom we C shall continue to refer to simply as the two members of the Court, rejected that part of the defence where the appellant claimed that at the material time he was the branch manager, and that in that capacity he exercised his discretion and authorized payment of the cheques in the circumstances. A lot of argument centered around this point. The appellant had D asserted that he was posted from Morogoro to Mahenge as a branch manager, adding that the letter of his posting was at Mahenge while the copy thereof remained at Morogoro, and that if the prosecution so wished they could call the manager at Morogoro branch to produce it. The two members of the Court rejected that claim and preferred the E prosecution evidence which was to the effect that at the material time there was no substantive manager, that P.W.4, the accountant, was in accordance with the banking practice, the acting manager while the appellant was posted there simply as his number two. In rejecting that part of the defence, the two members of the Court took the view that "... where an F accused person relies on any defence it is his duty to prove, on a balance of probability that defence." And consistent with that view the two members of the Court contended that the duty to produce the letter of posting him as manager G was on the appellant and not on the prosecution. With due respect, this was a serious misdirection in law. The cardinal principle of our criminal law is that the burden is on the prosecution to prove its case; no duty is cast on the accused to prove his innocence. There are a few well known exceptions to this principle, one example being where the accused H raises the defence of insanity in which case he must prove it on a balance of probabilities. But the present case did not involve any defence which fell within the known exceptions so as to require the appellant to prove it. Nor could it be said that the letter was a matter which was specially within the appellant's knowledge so as to place on him, in terms of I section 114(1) of the Evidence Act, the

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KISANGA JA

A duty to prove or produce it. Therefore in holding that the duty was on the appellant and not on the prosecution to produce the letter the two members of the Court shifted the burden to the accused person and to that extent they were in error. The duty was clearly on the prosecution. More so especially after the appellant had expressly mentioned the B places where the letter and its copy could be found. Had the letter been produced, we cannot say for certain that it

would have necessarily supported the Court's finding that the appellant was not the manager at the material time.

In rejecting that part of the defence where the appellant claimed that he, in his capacity as manager exercised his C discretion to authorize payment of the cheques, the two members of the Court took the view that even assuming that the appellant was the manager, there was no proof that he was vested with any such discretion. The appellant had said in his defence that his discretion was contained in what he described as Volume 2 of the Bank Handbook at paragraph 6/21. D The provision, he said, conferred on him the authority to decide such matters. There is no indication that the said Handbook was ever produced or put in evidence. The two members of the Court rejected this part of the defence E because the appellant did not show or spell out the extent of his discretion. This is what they said:

.... The accused talked of his discretion under the banking procedures but he did not say what was the limit of his discretion. This would have helped the court to decide whether the discretion he used was reasonable in allowing the encashment of the Shs F . 250,000/= by defaulting the procedure.

With due respect, once again, this was a misdirection. The Court could not properly blame the appellant for not giving G adequage information about the extent of his discretion because he himself may have thought that the information he had given was enough. And indeed on glancing through his cross-examination, there is no indication that he was asked anything as to the limits of his discretion in the matter. In any event if the Court felt that it was necessary to have further H information to enable it to decide on the precise extent of the appellant's discretion, then it was open to the Court to call for the said Bank Handbook and to refer to the actual text. It could have done so by requiring an official of the bank to produce the book in evidence for the purpose. As things stand now, it cannot be said that this part of the appellant's I defence was given adequate

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KISANGA JA

A consideration and refused on sufficient grounds. Had the Bank Handbook been produced, it might well have supported the appellant's contention that it conferred on him the necessary powers and discretion to act as he did, in which case the two members of the Court might have come to a different conclusion on the matter.

B The two members of the Court in considering the defence further, found that the appellant in authorizing the cheques acted unreasonably by relying on bank documents which were in possession of Isaac, his client, and which were sixteen months old. The said documents included counterfoils of cheque books, bank statements and bank paying-in-slips which C showed that Isaac's bank operation was good. But with due respect it seems that the Court was here picking and choosing from the defence only what was convenient for the purpose of its decision. Because the appellant said that in exercising the discretion to authorize the cheques, he took into consideration other factors in addition to those documents D . He said that he had known Isaac for a long time as a good customer of the bank. Isaac was a transporter and he owned a tractor. He was also a cattle dealer and he owned houses including one he had bought at Shinyanga. On

the material day, the appellant went on, Isaac showed him Shs. 600,000/= in hard cash and told him that he was seeking to E withdraw an additional Shs. 250,000/= to enable him to purchase a lorry which was selling at Shs. 800,000/=. In holding that the appellant failed to exercise reasonable care the two members of the Court did not take into account these additional factors. To the extent of such omission they erred. They ought to have considered the defence in whole, not F only in part, and to see whether it created any reasonable doubt in their minds. The appellant claimed that upon considering all these factors he was convinced that his client was creditworthy and accordingly he authorized the cheques honestly believing that they would be honoured upon presentation for payment at Igunga. We are of the view that had the G two members of the Court considered the appellant's defence in whole they might have found that at least it was sufficient to cast a reasonable doubt as to his guilt. This is so especially as there was no attempt to contradict the appellant's assertion that Isaac, the said customer, owned various properties including the house at Shinyanga. Indeed H P.W.5, a police officer, testified that he visited Isaac's residence at Shinyanga although he did not find him there. This would tend to support the appellant's assertion that he believed that his client was a person who had property. I

1986 TLR p52

KISANGA JA

A In an attempt to prove lack of care or negligence on the part of the appellant, the prosecution had sought to rely on a circular letter allegedly issued by the Bank's headquarters instructing its branches at Nyerere Road Mwanza, Tabora, Igunga and Shinyanga to close the accounts operated by Isaac and to leave only one. This circular was referred to and B the contents of it were actually read out in court by P.W.4. But for some reasons which are not immediately apparent, it was not tendered in evidence as exhibit. However, that circular was rightly not taken into account in considering the appellant's guilt because, among other things, the authorship of it was not proved and there was no evidence that its C contents had been communicated, or were known, to the appellant.

In the fourth ground of appeal Mr. Masati rightly complained that in the absence of one lay member, and the other lay D member dissenting, the learned judge proceeded to deliver the majority decision and further proceeded alone to sentence the appellant. This matter was governed by the provisions of section 16 of the Act, the relevant part of which provides that:

16. All questions to be decided by the Court, including the decision whether it finds the accused person guilty or Lnot guilty, shall E be decided by agreement of the majority of the members....

It is quite apparent from this provision that the issue of sentence is one to be decided by majority of the members of the F Court. The learned judge, therefore erred in proceeding alone to determine that issue. His order of sentence was therefore invalid, and had we been minded to uphold the conviction we would be bound to interefere with that order.

G Before we conclude the appeal we wish to observe although very briefly that the handling of this case was not at all satisfactory. The treatment of some of the issues involved was at times too casual and left a lot to be desired. The investigation of it was most superficial, and the

presentation of it in court was only half-hearted leaving too many loose H ends. The number of misdirections on the part of the Court only served to aggravate that situation. We hope that all those concerned will make the necessary efforts to overcome such situations in future.

I In the last analysis we are of the view that the evidence adduced in support of the charge was not at all strong, and the appellant's defence, properly considered, raises serious doubts as to his
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A guilt. In the circumstances we are satisfied that there is merit in this appeal which ought to succeed. Mr. Shio, the learned advocate who appeared for the respondent Republic at first sought to support the conviction, but on second thoughts conceded to this view. In the result we allow the appeal, quash the conviction and set aside the sentence with an order for the immediate release of the appellant unless he is otherwise lawfully held in custody. B

Having quashed the conviction, we find it not necessary now to consider the last ground of appeal which raises, in the alternative, the issue of excessiveness of the sentence and severity of the compensation order. C

Appeal allowed.

1986 TLR p53

D

[zRPz]MUJUNI JOSEPH KATARAIA v SAMWEL NTAMBALA LUANGISA AND ANOTHER
1986 TLR 53 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mustafa JJA, Omar JJA, Mapigano, Ag JA

E

22nd July, 1987
CIVIL APPEAL 25 OF 1986
Flynote

F Election Petition - Irregularity - Failure to comply with the provisions of a booklet - However, s.61(c) (iii) of the Elections Act, 1984 complied with - Whether fatal irregularity
Election Petition - Evidence - Failure to call an important witness - Whether necessarily calls for an adverse inference to be drawn against the party who failed to call the witness G
-Headnote

One of the complaints the appellant raised before the Court of Appeal was that there was an irregularity arising out of failure of the assistant returning officer to follow the guidelines given in a booklet titled "Guide to the Presiding Officers on H the Election Procedure". The guide required the officers to record on the counterfoils of ballot papers three numbers - the registration centre number, the constituency number and the voter's serial number. The officer recorded the voter's serial number only and this was in compliance with s.61(c)(iii) of the Elections Act, 1985. I

1986 TLR p54

MUSTAFA JA

A Another complaint was that the respondent did not call an important witness and asked the court to draw an adverse inference against the respondent.

Held: (i) The Elections Act requires only that the number of the voter be recorded; B

(ii) in this case the failure to call the witness did not call for any adverse inference to be drawn against the first respondent.

Case Information

Appeal dismissed.

C Case referred to:

1. Abel Mwanga v Elisaph Lima, C.A. No. 4/82.

D Rutashobya, for the appellant

Kahangwa, for the first respondent

Mrema, for the Attorney-General

[zJDz]Judgment

Mustafa, J.A.: In the Parliamentary election held in the Bukoba Urban constituency in October, 1985, E the 1st respondent herein Samwel Luangisa was the successful candidate. The 1st respondent won by 370 votes over his opponent Mujuni Kataraia the appellant herein. The 1st respondent polled 6,846 votes while the appellant polled 6,476 votes. The appellant challenged the election results in the High Court (Mwalusanya, J.) by way of an election F petition, but his petition was dismissed with costs in September, 1986, and he is now appealing to this Court. The Attorney-General has been joined as a second respondent in this appeal.

G In the High Court the appellant had alleged corruption, illegal campaigning and the exercise of undue influence on the part of the 1st respondent and various acts of non-compliance with the Elections Act on the part of the election officials. The High Court dealt with all the points raised in the petition and dismissed all the charges of corruption and illegal H campaign and acts of undue influence alleged. The High Court held that there were certain acts of non-compliance on the part of the election officials but concluded that those acts related to a very small number of voters and did not affect the result of the election.

We will consider the ten grounds of appeal filed by the appellant. Mr. Rutashobya appeared for the appellant in the appeal I

A before us, Mr. Kahangwa for the 1st respondent and Mr. Mrema for the Attorney General.

The first ground of appeal alleged that the trial judge had "played a partisan role" at the trial, presumably in favour of the 1st respondent. This ground can conveniently be taken with ground 10 of the appeal. In ground 10 the appellant alleged B that the trial judge "had misdirected himself when he declared that the appellant's counsel has not shown him how the illegal practices and contravention and non-compliance of the Elections Act 1985 had affected the results without asking the advocate to clarify on that and it was not proper for the judge to declare that before he heard the submissions of the C respondent's counsel and wrote his judgment".

Mr. Rutashobya based that serious allegation of the trial judge being a partisan on the following ground. After Mr. Lipiki, who at the trial had acted for the appellant, had completed his final submission to the court, the trial judge made the following observation which was on the record: D

I wish only to observe that you have not shown how the illegal practices and contravention or non-compliance of the Election Act has affected the results. As for the illegal campaigns you have not shown as to how they prevented the majority of the voters from E electing the candidate of their choice. If you had alluded to those points in your submission you would have rendered my job easier and helped me a good deal. F

In the judgment itself the trial judge reverted to this matter. He referred to several decided cases where certain acts of non-compliance had been found not to have affected the results of an election and therefore could not nullify an election. He continued. G

I have dwelt at length with these preliminary remarks because they are important but particularly because counsel for the petitioner Mr. Lipiki appears not to have been aware of these provisions. In his final submission he invited this Court to nullify the election H even if the contraventions in question did not affect the results of the election....

Mr. Rutashobya submitted that the trial judge had already made up his mind to dismiss the petition as soon as Mr. Lipiki I had made his final submission. He contended that the trial judge should,

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MUSTAFA JA

A after Mr. Lipiki had finished, have asked Mr. Lipiki "to clarify" on the point about results being affected. Then Court Mr. Rutashobya said:

My submission is that reading through Mr. Lipiki's arguments at the end of the trial he had referred to the results being affected by B the illegal practices or non-compliance.

We think that the trial judge made his observation more in sorrow than anything else. He had expected help from counsel C appearing before him, including Mr. Lipiki, in deciding his case. It is clear that in law, certain acts of non-compliance, if they do not affect the result of an election, cannot have the effect of nullifying it. It would seem that Mr. Lipiki was not conversant with that aspect of the law, as he apparently submitted that any act of non-compliance, irrespective of whether D it affected the election result, would nullify an election.

If after the observation by the trial judge, Mr. Lipiki had wanted to "clarify" certain matters, he was at liberty to seek permission from the court to do so. The Court was still in session, and the trial was still proceeding. Mr. Lipiki did not E seek such permission. In these circumstances it seems extraordinary to us that Mr. Rutashobya had thought fit to complain in the way he had done. It was for Mr. Lipiki, if he had wanted to "clarify" matters, to do so. The judge had indicated to Mr. Lipiki what was wanted.

F In answer to this Court Mr. Rutashobya had stated that Mr. Lipiki, in his final submission, had referred to the issue about results being affected by illegal practices or non-compliance with election provisions. We have since read Mr. Lipiki's submission as contained in the record of appeal and we can find no trace of such reference. Mr. Rutashobya G misled us. He should be

more careful and more responsible in his submissions before a court; or in making a serious allegation against the trial judge of being a partisan of the 1st respondent, unless he had some sort of evidence to H substantiate such allegation. Not a shred of evidence was forthcoming about the trial judge being a partisan. We are aware that Mr. Rutashobya had only been recently admitted to the Bar, and we will, on this occasion overlook what clearly is irresponsible and possibly improper conduct on his part. We may not be so lenient in future.

I On ground 2 it was contended that the trial judge had intimidated or threatened P.W.27 Wilbard Yusufu and had erred in

1986 TLR p57

MUSTAFA JA

A rejecting Yusufu's evidence alleging corruption. During his testimony Yusufu alleged that the 1st respondent gave him Shs. 200 to help in the former's election campaign. When cross-examined by counsel for the 1st respondent Yusufu stated: "I am sure I can be convicted of corruption. I did not think it is a bad thing .. I don't know that to receive a bribe B is an offence".

Mr. Rutashobya purported to file a supplementary record of appeal in terms of Rule 92(1) of the Court of Appeal Rules. However the record consisted of an affidavit by the appellant and a photocopy of a newspaper item apparently dated 13.8.86. Counsel for both the respondents submitted that it was not a supplementary record of appeal and referred to C Rule 89 of the Rules of the Court of Appeal as to what constituted a record of appeal. The newspaper item clearly was inadmissible and the affidavit purported to refer to something not in the record of proceedings. It would seem that what D Mr. Rutashobya wanted was either to challenge the accuracy of the record or to seek to introduce additional evidence. If he had so wanted he had certainly adopted the wrong way and method of doing so. The so-called supplementary record is not admissible and will not be looked at. There is just no evidence to support the allegation that the trial judge E intimidated and threatened P.W.27 Yusufu.

The trial judge dealt at length with the testimony of P.W.27 Yusufu and the 1st respondent and his witnesses on the allegation of the bribe of Shs. 200 being given to Yusufu, and concluded that Yusufu was a liar and could not be believed. F We see no reason to differ from that finding.

Both ground 3 and ground 5 refer to the party held at the 1st respondent's house at Kitendagulo Village on 6.8.1986. It was common ground that a party was held there on that day. The 1st respondent's version was that it was a party for G close relatives to welcome him home after an absence of 2 months in Dar es Salaam where he attended the Budget Session. Only one outsider P.W.10 Joel, a close friend, was at the party. He said he personally did not invite anybody as he had arrived only the previous day. He said in evidence: H

1It was for me to bid farewell to my friends and they were congratulating me for having finished my five-year term safely. It was just a family get together to congratulate me for having finished my term safely. I

1986 TLR p58

MUSTAFA JA

A The persons who attended ate food and a religious song was sung. There were no speeches nor was there any campaign during the party. There was a funeral of a neighbour that day and R.W.20 Lugusha, the District Party Chairman passed by on his way to the funeral and joined the 1st respondent for food. R.W.12 Jones and R.W.19 Jesse B also attended the funeral that day, but did not join the party.

P.W.11 Salum and P.W.12 Alfonce alleged that they were invited to and attended the party. They alleged that at the party which was attended by many people R.W.20 Lugusha spoke and urged 1st respondent to be the candidate for the new Parliament and that was agreed to by acclamation. He said among those present supporting the 1st respondent was C R.W.19 Jesse. A number of people signed the 1st respondent's nomination after the 1st respondent had agreed to stand as a candidate. He said P.W.10 Joel was also at the meeting together with Party and Government Officials. D Incidentally P.W. 11 alleged that the 1st respondent had invited all the leaders, players and fans (presumably supporters) of the Balimi Football Club and these attended the party. P.W.12 was a watchman of Bukoba Town Council.

E The trial judge went into the evidence adduced by the witnesses on both sides in great detail. He disbelieved both P.W.11 and P.W.12 as to what transpired at the party. He gave his reasons, a cogent one being that it was highly improbable that the 1st respondent could have invited to a campaign party all the "fans, players and leaders" of the Balimi F Football Club which formed a large group and could contain enemies as well as friends, especially as there was undisputed evidence that there was some friction between the Football Club and the 1st respondent. The judge also was of the view that if R.W.19 Jesse was at the party as the 1st respondent's supporter it was difficult to understand why the G appellant did not object to R.W.19 being appointed the Chairman of the campaign meetings on 2.10.85. The appellant stated that he had no objection to the appointment of R.W.19 as Chairman, and he did not object on 12.10.85 when the supervisory delegates were introduced. The judge was satisfied that both P.W.11 and P.W.12 had lied in court. He H preferred the version of the party as given by the 1st respondent and his witnesses. In fact the evidence of P.W.10 Joel would also support the version given by the 1st respondent.

In our view it was open to the trial judge, after assessing and analysing the evidence, and with the opportunity of seeing I and hearing the witnesses testifying, to have accepted or rejected the

A evidence of P.W.11 and P.W.12. We could not find any misdirection or non-direction in his assessment of the evidence.

In ground 4 the appellant alleged that the judge had erred in finding that there was no evidence that non-citizens had B voted and in ignoring evidence which showed that several unregistered persons were permitted to vote. This ground is totally baseless. The petitioner testified that he was informed by one Kakwezi that two non-citizens who he named had voted. Kakwezi was not called to give evidence and the petitioner's evidence was hearsay and inadmissible. Four C non-citizens attempted to vote and were caught and their voting cards confiscated. Mr.

Rutashobya attempted to argue that because 4 non-citizens were caught trying to vote, that was evidence that a number of non-citizens must have voted. That is a good instance of turning an argument on its head!

In ground 6 it was alleged that there was evidence that some people voted at polling stations not allotted to them, and that some voters were denied their right to vote. The appellant contended that the trial judge erred in holding that such D non-compliance with the election provisions did not affect the election result.

It is true that the judge found that 5 voters voted at polling stations not allotted to them, and he held that since that E misconduct created the same conditions for both candidates, the contravention did not affect the result of the election. Similarly the judge found that 6 non-registered voters had used "floating cards", and thus 6 registered voters had been deprived of their votes. He similarly held that did not affect the result of the election. Three persons, 2 drivers and a F policeman, were deprived of the right to vote, as they were assigned duties outside their constituencies on election day. In any event only 14 votes were involved; and in whatever way one looked at it, considering the majority was 370 votes, that could not have affected the result of the election. G

Ground 7 was concerned with non-stamping of ballot papers. Only one such instance was proved and one vote was spoiled in this way. This could not be said to have had any effect on the election result.

Ground 8 reads: "That the judge improperly dismissed the evidence proving that properly registered voters were H disqualified to vote".

A number of school boys, about 100, had their registration cards withdrawn. The 1st respondent had complained to the Assistant Returning Officer P.W.33 Tsere that under age students had been registered as voters. P.W.33 checked the I admission registers

A as to the age of the students, and withdrew 100 or so registration cards as he found that those students were under-age. Three such students testified. P.W.6 Deogratias admitted he was under-age and 2 others P.W.7 Rebangila and P.W.8 Abdul Razak alleged that they were then over 18 years and of age. All these 3 witnesses gave evidence of B their age themselves. No birth certificate was produced nor were parents or relatives called who could testify as to their dates of birth. In our view both the evidence of age contained in the admission registers and that given by the students themselves was hearsay. In fact no proper evidence of the students' age was established. However, the evidence of age C contained in the admission registers was ante litem, unlike the evidence of age given by the students at the trial. If the appellant had wanted to establish that the students were improperly deprived of their right to vote, it was for him to establish that fact. He had failed to do so. At the highest, two students could perhaps be said to have been so deprived. D That figure could not have affected the election result.

Ground 9 is concerned with the interpretation of section 61(c)(iii) of the Elections Act 1985. The appellant alleged that the judge had erred in its interpretation. It reads:

E 61. The voting at an election shall be conducted in the following manner -

(a) ....

F (b) ....

(c) immediately before the presiding officer or polling assistant delivers a ballot paper to any person -

(i) ....

G (ii) ....

(iii) the number of the voter in the copy of the register of voters or part thereof shall be marked on the counterfoil ...

H There were some 596 counterfoils of ballot papers which were irregular in that the presiding officer had recorded only the serial number of the voter instead of recording 3 numbers i.e. the registration centre number, the constituency number and the voter's serial number. However the Assistant Returning Officer was positive that the irregularity did not affect the I voting as the voters voted in the normal way and he was able "to trace where the voters voted in

A reading the printed number on the counterfoil and then tracing it in the Register of voters as to where it was allocated and if it voted or not". He established in Court that all the 596 voters voted in accordance with the law. It was contended on behalf of the appellant that the irregularity was fatal as it offended the provisions of a booklet, called "Guide B to the Presiding Officers on the Election Procedure". The trial judge held that the law applicable was the Elections Act as contained in the provisions of Sec. 61(c)(iii), which provided that what was necessary was "the number of the voter in the copy of the register of voters, or part thereof shall be marked on the counterfoil." Mr. Rutashobya contended that the C words "or part thereof" refer to the register and from there he went on to argue that the number of the voter by itself was insufficient, and that the registration centre number and the serial number must also be marked on the counterfoil. We think that Mr. Rutashobya is in error and we agree with the trial judge that the Elections Act requires only that the D number of the voter be recorded. This ground of appeal also fails.

That would dispose of all the grounds of appeal preferred by the appellant. However Mr. Rutashobya also raised an issue not disclosed in the petition of appeal. He referred to an alleged act of corruption in which one relative of the 1st E respondent by the name of Justina d/o Patric was involved, in respect of the campaign for the 1st respondent. P.W.5 Oswald had testified that, as head of a Ngoma group, he was approached by Justina who allegedly gave him Shs.5,000/= and a gallon of "gongo", an illicit liquor. P.W.5 stated that he met Justina in her house as he was called F there. He was accompanied by among others, R.W.13 John Kijiko, R.W.16 Abdul Rwekaza (Secretary of CCM Branch) and R.W.14 Marco Kahwa, treasurer of his ngoma group. Justina was present and handed Shs.5,000/= to R.W.14 Marco the group treasurer saying that was given by the 1st respondent for the campaign. P.W.5 was the only G witness produced by the appellant concerning that alleged incident.

The 1st respondent denied having had anything to do with that alleged act, and called R.W.13 John, R.W.16 Abdul and R.W.14 Marco, who all denied that there was any such meeting or handing over of money and so on. Justina was not H called.

Mr. Rutashobya has urged before us that the Court must draw an adverse inference from the failure on the part of the 1st respondent to call Justina, as Justina was a very important witness. I

1986 TLR p62

MUSTAFA JA

A We agree that Justina was an important witness, and we are surprised that she was not called. However the other three witnesses called to refute the story of P.W.5 Oswald were also important, as they were alleged by P.W.5 to be with him when the incident took place. Justina was a relative, while these 3 others were not. We think in this case the 1st B respondent had adduced credible and sufficient evidence which the judge accepted and believed to rebut the evidence provided by P.W.5. Each case has to be judged on its own facts, and we are satisfied that in this case, the failure to call C Justina did not call for any adverse inference to be drawn against the 1st respondent.

We were referred to an unreported judgment being C.A. No. 4/82 Abel Mwanga v Elisaph Lima, where because an important and crucial potential witness was not called by Abel Mwanga, the Court drew an adverse inference against D Mwanga. However the facts in that case were different. Mwanga in that case denied knowing the person who was not called, and Mwanga's acquaintance with that person became a matter of prime importance in the course of the trial. There was sufficient evidence adduced which showed that Mwanga knew that person, and the onus was on Mwanga to E refute that evidence. His failure to call that person in the circumstances resulted in the adverse inference being drawn.

In his judgment the trial judge had "assumed" on several occasions. He "assumed" that if, for instance, the 100 students F were improperly prevented from voting, that number should have been taken into account, to the prejudice of the 1st respondent. Based on such "assumptions" he arrived at the figure of 117. He stated, in view of the majority of 370 in favour of the 1st resplondent, even if the 117 votes were taken into account, that would not have affected the results.

G Mr. Rutashobya had, not unnaturally, tried to rely on these "assumptions", as if they were findings of fact. We venture to think that perhaps the trial judge had meant that if he was wrong on certain issues, then the appellant should have had the advantage of 117 votes, and even then, the election results would not have been affected. H

The appeal is dismissed with costs.

1986 TLR p63

A

[zRPz]CHAIRMAN, NYABIOYONZA RURAL COOPERATIVE SOCIETY LTD v COSMAS RUMANYIKA 1986 TLR 63 (HC)

Court High Court of Tanzania - Mwanza

Judge Mwalusanya J

B
20th August, 1986
CIVIL APPEAL 21 OF 1985
Flynote
Cooperative Societies - Interpretation -Appointments' mentioned in s.181(c) of the Cooperative Societies Act, 1982 - Whether they include employees of the various cooperative societies formed under Act no. 27 of 1968. C
Labour Law - Employee of registered villages - Whether employment continued automatically on dissolution of registered villages and establishment of cooperative societies in their stead.
-Headnote
D The respondent was initially employed by a cooperative society. On dissolution of cooperative societies in 1976 his services were retained by 13 registered villages which earlier comprised the defunct society. The respondent was interdicted from employment when he was charged in court for theft from his employer. While the case was still pending came the enactment of the Cooperative Societies Act, 1982. Pursuant to this Act the 13 registered villages were E dissolved. Members of the villages formed the appellant cooperative society. The respondent sued the appellant arguing that he was entitled, as of right, to half salary from his employer from the day of his interdiction. F
Held: (i) The appointment envisaged in s.181(e) of the Cooperative Societies Act, 1982 are those specifically spelt out by the statute in its provisions;
G (ii) the appellant cooperative society is quite distinct from the former respondent's employer (the 13 registered villages) because its membership is drawn from individual members and not from registered villages.
Case Information
Appeal allowed. H
No case referred to.
Kahangwa, for the appellant.
Katabalwa, for the respondent I
1986 TLR p64
MWALUSANYA J
[zJDz]Judgment
A Mwalusanya, J.: The appellant, the Nyabioyonza Rural Primary Cooperative Society Ltd., was successfully sued by the respondent Cosmas s/o Rumanyika at Bukoba R.M.'s Court in a claim of Shs. 18,200/= being arrears of half-salary for the period the respondent was interdicted from service starting from 12/6/1980 to the time of B filing the suit on 16/10/1984. In its written statement of defence the appellant cooperative society has denied that the respondent had been its employee.
The respondent's case at the trial was that on 1/6/1976 he was employed by the Nyabioyonza Farmers Cooperative C Society Ltd. as a Secretary. This cooperative society was allegedly formed by some 13 villages close to Nyabioyonza village in Karagwe District, Kagera Region. It

was not long when the aforesaid cooperative society, alongside with other cooperative societies in the country, was dissolved by the government vide GN. 1137 of 1976. The liquidators were D appointed by the government to look after the interests of the employees as well as settling the assets and debts of the defunct cooperative societies. With the demise of the cooperative societies there was a temporary vacuum as to who would handle the peasants' crop for sale to the marketing boards.

E However in due course the problem was solved. There existed villages which were registered under The Villages and Ujamaa Villages (Registration, Designation and Administration) Act No. 21 of 1975. Now some crop marketing boards like Coffee Authority of Tanzania, Tanzania Cotton Authority and National Milling Corporation appointed some of the F registered villages to undertake the duty of crop-buying from the farmers. In the case at hand some 13 registered villages which had earlier comprised the defunct Nyabioyonza Farmers Cooperative Society were appointed agents for buying crops from the farmers by the aforesaid marketing boards. The services of the respondent were retained at a salary of G Shs.700/=. In the course of time the villages which employed the respondent dwindled from 13 villages to five villages - namely Ahakishaka, Nyabioyonza, Bukangaza, Kijumbura and Chamchuzi. On 12/6/1980 the accused was interdicted from employment when he was charged in court for theft of money from his employer vide Karagwe Criminal Case No. H 204/80 (it was later withdrawn and now it is Karagwe Criminal Case No. 64/1984). That case is still pending.

Then came the enactment of the Cooperative Societies Act No. 14 of 1982. By virtue of s. 29(1)(f) of that statute, rural cooperative societies may be formed for the purpose of collecting agricultural products from its members and to deliver I those products

A for sale to the marketing boards. Pursuant to that statute on 5/12/1983 the appellant society, was duly registered as a cooperative society vide registration No. 3584. It was submitted by the respondent that this new cooperative society known as Nyabioyonza Rural Cooperative Society Ltd. comprised all or almost all of the 13 villages which had formed B the cooperative society which was dissolved in 1976. So the respondent submitted that he was in fact in a continuous employment by the same employer from 1/6/1976 to this day. However counsel for the appellant cooperative society Mr. Kahangwa argued that the members of the appellant cooperative society are individual human beings and not villages C vide s. 24 of Act No. 14/1982. And so it was Kahangwa's submission that respondent had not been employed by the same employer but by three distinct employers since 1/6/1976,

Be that as it may, it was the respondent's case at the trial that by virtue of s. 29 of the Security of Employment Act Cap. D 574 (as amended by s. 17 of Act No. 1/1975), he was entitled as of right to half salary from his employer from the day of his interdiction. And he argued that the appellant is his present employer who is liable because he has taken over all the liabilities and assets of the registered villages which had employed him after the dissolution of the former cooperative E society.

The learned trial Resident Magistrate capitulated to that argument of the respondent and held that the appellant cooperative society was indeed liable because under s. 181(g) of the Cooperative Societies Act No. 14/1982, it took over all the assets and liabilities of the former cooperative society. At the hearing of this appeal the respondent conceded F that the trial magistrate was wrong to invoke s. 181(g) because it only talks of inheriting immovable property of the former cooperative societies but not all assets and liabilities. So the judgment of the trial court cannot be supported. G

Undaunted the respondent submitted at the hearing of the appeal as did his counsel Mr. Katabalwa at the trial that s. 181(e) of the Cooperative Societies Act No. 14/1982 holds the new rural cooperative societies liable as they inherit all the employees of the former cooperative societies. This s. 181(e) reads: H

Notwithstanding the provision of s. 180 (which repeals the Cooperative Societies Act No. 27 of 1968), all orders, directions, appointments and other acts and things lawfully made or done under any of the provisions of the Act and in force immediately I before the commencement of this Act shall be

A deemed to have been made or done under the corresponding provisions of this Act and shall continue to have effect accordingly.

As the emphasized words clearly indicate, the appointments which have been saved are only those which were made B under the Cooperative Societies Act No. 27 of 1968. But as amply demonstrated above the appointment of the respondent was not under Act No. 27 of 1968 but under Act No. 21 of 1975, which allowed the formation of registered C villages. And s. 5 of the Muungano wa Vyama vya Ushirika Act No. 9 of 1979 clearly stipulates that registered villages are deemed to be cooperative societies not under the Cooperative Societies Act No. 27 of 1968 but under s. 13 of Act No. 21 of 1975. And in any case I have serious misgivings as to whether the appointments mentioned in s. 181 (e) of D Act No. 14/1982 include employees of the various cooperative societies formed under Act No. 27 of 1968. The most reasonable interpretation would appear to be that the appointments envisaged are only those specifically spelled out by the statute in its provisions e.g. Secretary-General, Registrar, Deputy Registrar, Assistant Registrars, etc. That sufficiently E disposes of the respondent's argument that he was in fact an employee of the appellant cooperative society.

Then the respondent had another arrow in his armoury and he contended that his employment must be taken to be under the cooperative Societies Act No. 27 of 1968 because he was in 'continuous employment' from 1976 to this day. In F fact the Labour officer Mr. Hamisi s/o Mrimi (PW 3) supported him at the trial on that line whereof he cited s. 8A(i)(d) of the Severance Allowance Act No. 81/1962 (Cap. 487), which he said recognised 'continuous employments' of the kind G the respondent had found himself in. However I note that the contention is misconceived. In fact the relevant section is s. 8A (3) which states that where an employee ceases to be in the employment of one employer and enters or is deemed to enter the employment of another employer who takes over the business, the employment of that

employee shall be H deemed to be continuous employment by one employer and the last employer will be that one employer who will be liable for the severance allowance demanded.
The short answer to this contention is that the Severance Allowance Act does not lay a general rule as to when an employment can be said to be continuous or not. That provision pertains to the I
1986 TLR p67
A claims of severance allowance only. And in any case the section in question says that the employment shall be deemed to be continuous and not that the employment is in fact continuous. That statute clearly recognizes the naked fact that in the circumstances obtaining here, the employment is not in fact continuous or automatic and hence its use of the word B 'deemed' for the purpose of claims of severance allowance only.
Therefore in my considered opinion, at no time was the respondent an employee of the appellant cooperative society. Let it be noted that the appellant cooperative society is quite distinct from the former respondent's employer (the 13 C registered villages) because its membership is drawn from individual members and not from registered villages. The remedy of the respondent lies in suing the 13 registered villages jointly or severally, because these were his employers. The appellant cooperative society (this time uncooperative society) was not his employer. Therefore this appeal is allowed with costs. D
Appeal allowed.
1986 TLR p67
F
[zRPz]A.D. MASHOTO v A.H. KAUNGA 1986 TLR 67 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

9 May, 1987
CIVIL CASE 18 OF 1983
Flynote
Civil Practice and Procedure - Objection proceedings - House of judgment debtor attached in execution of decree - House G already sold to objector - Objector given possession of the premises and the title deed - Transfer of ownership not finalized - Requisite consent to transfer not yet obtained - Whether the house liable to attachment
-Headnote
H The respondent sold his house to one Fifi M. Fifi. Possession of the house and the title deed were given to the latter. The transfer of ownership was, however, not finalized because requisite consent was yet to be obtained. The plaintiff sought to attach the house in execution of a decree. Fifi M. Fifi objected. I
1986 TLR p68
CHIPETA J

A Held: Since the agreement was with a consideration and possession of both the property and the title deed passed as long as consent has not been refused the objector has an interest in the property which interest a court of law ought not to disregard with abandon.

Case Information

B Objection succeeds.

No case referred to.

Kwikima, for the plaintiff

C Ntabaye, for the objector

[zJDz]Judgment

Chipeta, J.:This is a ruling in respect of objection proceedings. The background of the matter is that sometime in 1983, the plaintiff in these proceedings, A.D. Mashoto, successfully sued one A.H. Kaunga for a principal D sum of Shs. 112,129.20.

Meanwhile, the said A.H. Kaunga, hereinafter referred to as the judgment-debtor, entered into a written agreement with the objector in these proceedings, Fifi M. Fifi, for the sale of the judgment-debtor's house on Plot No. 93, Block G., E Kazeh Hill, Tabora, to the objector for Shs. 200,000/=. The purchase amount was duly paid, and the objector was given possession of the premises as well as the title deed. Besides the judgment-debtor gave the objector another document to enable the objector to transfer the property into his own name. Thereafter, the objector embarked upon the F process of effecting the transfer, a process that is yet, to be finalized.

Some two years later, the plaintiff instituted execution proceedings in execution of his decree against the judgment - debtor and the house in question was attached. Hence these objection proceedings. G

Mr. Kwikima, learned counsel for the plaintiff contended that since the consent to transfer by the Regional Land Officer was yet to be obtained, the property was still that of the judgment-debtor and so is liable to attachment, and that the objector was no more than a mere occupier.

H Mr. Ntabaye, learned counsel for the objector, countered by submitting that since the objector has taken all the necessary steps to effect the transfer and as consent has not been refused, the objector has a claim to the property.

I Since the agreement was with a consideration, and possession of both the property and the title deed passed, it seems to me

1986 TLR p69

A that as long as consent has not been refused the objector has some interest in the property, an interest which, in my opinion, a court of law ought not to disregard with abandon.

I am fortified in this view by a commentary in the Indian Transfer of Property Act by B.B. Mitra (11th Edition) where the B author states:

> But if the contract of sale is followed by delivery of possession and payment of purchase money, then, though there is no registered conveyance, the transaction is more than a mere contract. ... In such a case the vendor cannot say that the buyer has C obtained no interest in the property. Nor can the property be attached as the property of the vendor in execution of a decree against the vendor.

D With respect, I fully associate myself with that statement. To hold otherwise in such cases would be to encourage unscrupulous people to "sell" their properties as many times as their whims would permit.
On these grounds, the objection succeeds. The property in question ought not to be a subject to attachment in execution E of a decree against the judgment-debtor. The attachment thereon shall forthwith be raised. The objector shall have his costs.
Objection succeeds.
1986 TLR p69
F
[zRPz]JOSEPHAT L.K. LUGAIMUKAMU v FATHER CANUTE J. MZUWANDA 1986 TLR 69 (HC)

Court High Court of TAnzania - Dar Es Salaam
Judge Bahati J

G
11 April, 1985.
CIVIL APPEAL 18 OF 1981
Flynote
Evidence - Stamp Duty Act, 1977 - An unstamped document evidencing a loan agreement - Whether admissible in evidence - S.46 Stamp Duty Act, 1977. H
Stamp Duty Act - An unstamped document evidencing a loan agreement - Whether admissible in evidence - S.42 Stamp Duty Act, 1977.
I Stamp Duty Act - An unstamped document evidencing a loan agreement - Whether party relying on the document may be afforded
1986 TLR p70
BAHATI J
A opportunity to pay the requisite stamp duty.
The respondent sued the appellant in a District Court for recovery of a loan plus agreed interest. The respondent relied B on an unstamped document evidencing a loan agreement which the District Court admitted in evidence. The District Court gave judgment in his favour. The appellant challenged the decision of the District Court.
Held: (i) The ruling by the trial court on the admissibility of the written agreement was erroneous because section 46 of C the Stamp Duty Act, 1972 clearly stipulates that under no circumstances may an unstamped document which requires to be stamped be admissible in evidence;
(ii) the respondent if he so wishes may pay the stamp duty plus the penalty so that the written agreement may D form part of the evidence.
Case Information
Order accordingly.
Case referred to:

E 1. Sunderji Nanji Ltd. v Baloo [1958] E.A. 762.

Muccadam, for the appellant

Haule, for the respondent

[zJDz]Judgment

F Bahati, J.: This is an appeal by Josephat Lugaimukamu against the judgment and decree of the District Court at Morogoro in which it was decided that the sum of shs.13,000/= plus costs and interest should be paid to the respondent, Father Canute Mzuwanda by the appellant.

G The facts deposed at the trial were that the appellant Josephat Lugaimukamu wanted a loan of shs.13,000/= from Father Mzuwanda the respondent and that Father Mzuwanda paid this sum of shs.13,000/= to the appellant and a document was prepared in which the appellant acknowledges receipt of shs.13,000/= for business purposes and that H every time the appellant makes a sale he would pay 10% interest. Then at the conclusion of the business transaction the shs.13,000/= was to be refunded to the respondent. This was on 1/6/77. According to the evidence of the respondent I this agreement meant that there was a promise to repay the loan plus 10% profit. On 15/2/78 the respondent wrote the appellant asking for repayment of the loan. The appellant replied that he

A would soon pay back. The replies of the appellant were in writing (exhibit P2(a) and P2b). Since no money was forthcoming from the appellant the respondent filed this suit.

The defence denied receipt of any loan. The appellant however said that he was a Director of Morogoro Salt Packing B and Supply Industries Limited which was a private business. The appellant denied also writing exhibit P2(a) and P2(b). He also denied writing the agreement (exhibit P1) which he described as not a legal document because it was unstamped.

The learned trial magistrate found as a fact that the respondent lent shs.13,000/= to the appellant and that it was the C appellant who wrote exhibits P1,P2(a) and P2(b). He however found the interest of 10% to be too high and reduced it to 9% and with that he entered judgment for the plaintiff in the sum of shs.13,000/= plus interest and cost.

D The appellant has appealed against this judgment and decree of the trial Magistrate. At the hearing of the appeal Mr. Muccadam, learned counsel for the appellant applied for, and was granted leave to add, additional grounds to his memorandum of appeal. His additional grounds of appeal were that the document (exhibit P1) was not stamped and E therefore inadmissible and that the respondent had no locus standi in this case. Arguing the appeal, Mr. Muccadam said that the respondent should have brought the suit in the name of the R.C. (Church) Parish because in his evidence he clearly said that the money belonged to the parish. Since he produced no documents before the court that he had the F power of attorney so that he could sue on behalf of the parish, he had no locus standi in the matter according to the learned-counsel. He submitted further that the whole course of action was misconceived. Concerning the document purporting to be the agreement Mr. Muccadam submitted that it was unstamped and as such it was not admissible by G virtue of section 46 of the Stamp Duty Act, 1977. The document was still unstamped to date and it did not even have a signature. The agreement is

denied by the appellant and it was not proved that he had written it. Even the other chits (exhibits P2(a) and P2(b) were denied by the appellant. There was no proof of the handwriting on these documents to H be of the appellant. Mr. Muccadam concluded by saying that once these documents are excluded, there is nothing to prove the loan and therefore the appeal should be allowed.

With regard to the question of the identity of the owner of the money, Mr. Haule submitted that the respondent was a I priest who

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BAHATI J

A was the principal officer of the church. He also said that the question of locus standi should have been raised at the hearing of the case and not on appeal. He also submitted that since the respondent as principal officer could according to long standing practice deal with the money as he wished, the question of power of attorney did not arise. He went on to B say that the case was proved on the balance of the probabilities by exhibit P1 and P2(a) and P2(b), when these documents are taken together with the oral evidence. He further agreed with the way the trial magistrate dealt with the exhibits. He asked the appeal to be dismissed. In a short reply Mr. Muccadam submitted that since the money did not C belong to the respondent he could not be classified as a recognized agent of the Parish within Order 3 Rule (2) of the Civil Procedure Code. He further submitted that the question of wrong cause of action was obvious on the face of the record and that the court could not allow it to remain so. He also submitted that it was for the plaintiff to prove the D existence of the document as envisaged by s.110 of the Evidence Act and that a court could not rely on a document which was denied by the other party.

I propose to deal with each point raised in this appeal separately. I will at the outset deal first with the point of locus E standi. I can see no force in this argument because the simple answer to it is that in any case the respondent was a special owner of the shs.13,000/= even if the money did not belong to him. In any case this was not an issue before the trial court and it would be rather late now to bring it on appeal. F

With regard to the admissibility of exhibit PI which was the agreement for the loan, the authority cited by Mr. Haule Sunderji Nanji Ltd. v Mohamedali Kassam Bhaloo clearly shows that the respondent should have been given an G opportunity to pay the requisite stamp duty and penalty. Since in this appeal the ruling of the trial court was only in the judgment and the ruling was that no stamp duty was required, the respondent had no opportunity to pay the stamp duty and the penalty.

H There is no doubt but that the ruling by the trial court on the admissibility of the agreement (Exh.PI) was erroneous because section 46 of the Stamp Duty Act 1972 clearly stipulates that under no circumstances may an unstamped document which requires to be stamped be admissible in evidence. This agreement being an agreement in respect of a I loan was no doubt liable to stamp duty in terms of section 42 of the Act. Going by the holding in Sunderji's case cited above what is to be done now is to allow the respondent if he

1986 TLR p73

A so wishes to pay the stamp duty plus the penalty so that exhibit PI may form part of the evidence. Once that is done then the record should be brought back to this Court to determine whether on the strength of that document together with the rest of the evidence on record oral and documentary the learned trial magistrate was correct in coming to conclusion C to which he came. There cannot be any question of sending back the case file to the District Court as was done in Sunderji's case, because in this case the trial magistrate acted on exhibit P1 whereas in Sunderji's case the trial Magistrate did not act on the unstamped document and the file was remitted back to him to consider the evidence of the unstamped document which was made admissible by the payment of the stamp duty by the party who was relying on it. The Registrar of the High Court is to assess the amount of stamp duty payable on exhibit P1 together with the penalty due.

D It is so ordered accordingly, and order as to costs to await final determination of the appeal.
Ordered accordingly,

1986 TLR p73

F

[zRPz]JOHN MWOMBEKI BYOMBALIRWA v THE REGIONAL COMMISSIONER AND REGIONAL POLICE COMMANDER, BUKOBA 1986 TLR 73 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

28 March, 1987.
MISCELLANEOUS CIVIL CAUSE 22 OF 1986
Flynote

G Administrative Law - Judicial Review - Prerogative Orders - Mandamus - Conditions to be fulfilled before the order may issue.

-Headnote

H The applicant was one of suspected economic saboteurs. He was arrested in March 1983 and a substantial part of his property valued at Shs.11,675,680/= was seized (excluding beer and Konyagi). He was charged with hoarding property but the special tribunal acquitted him and ordered that the seized property be restored to the applicant. The government I officials involved did not comply with the order hence the application for an order of mandamus to issue.

1986 TLR p74

A Held: (i) Five conditions must be proved in order for an order of mandamus to issue:

(a) the applicant must have demanded performance and the respondents must have refused to perform;

(b) the respondents as public officers must have a public duty to perform imposed on them by statute or any other law but it B should not be a duty owed solely to the state but should be a duty owed as well to the individual citizen;

(c) the public duty imposed should be of an imperative nature and not a discretionary one;

C (d) the applicant must have a locus standi, that is he must have sufficient interest in the matter he is applying for;

(e) there should be no other appropriate remedy available to the applicant;

D (ii) in this application all the five conditions have been proved;

(iii) the applicant deserves an immediate order for redress because the injustice already done to him is substantial and unwarranted.

Case Information

E Application allowed.

Cases referred to:

1 I.R.C. v Small Business [1982] A.C. 617.

2. Re an Application by Bukoba Gymkhana Club [1963] E.A. 478

F 3. De Souza v Tanga Town Council [1961] E.A. 377.

4. Northern Tanzania Farmers' Coop. Society Ltd. v W.H. Shellukindo [1978] L.R.T. 37.

5. R. v Gaming Board, exparte Benaim and Khaida [1970] 2 All E.R. 528.

G 6. Patman Garments Industries Ltd. v Tanzania Manufacturers Ltd., Civil App. No. 15 of 1982.

7. D.C. of Kiambu exparte Ethan Njau [1960] E.A. 109.

8. R. v Mayor of Rochester (In the Parish of Strood) 119 E.R. 1490.

H 9. Re Application by Mwau [1985] L.R.C. (Const.) 444.

10 Shah v A.G. of Uganda (No.3) [1970] E.A. 543.

11. R. v Commissioners for Special Purposes of the Income Tax [1888] 21 Q.B.D. 313.

I 12. In the Matter of an Application by Mohamed Aslam Khan, Misc. Civil Cause 22 of 1966 (unreported).

13. Said Juma v.R. [1968] H.C.D. n.158.

1986 TLR p75

MWALUSANYA J

A 14. R v Mohamed s/o Salehe [1975] L.R.T. 32.

15. R. v The Commissioner of Metropolitan Police, exparte Blackburn [1968] 2 Q.B. 118.

16. Ex Parte J.C. Patel (1954) 27 K.L.R. 140.

B 17. Gouriet v Union of Post Office Workers and Others [1978] A.C. 435.

18. Finnigan v New Zealand Rugby Football Union (Incorporated) [1986] L.R.C. (Const.) 877.

19. Enderby Town Football Club v The F.A. [1971]1 All E.R. 215.

20. Re an Application by the A.G. of Tanganyika [1958] E.A. 482.

C 21. In Re Patel (1956) 2 T.L.R. (R) 227.

22. Shah Vershi Deushi & Co. Ltd. v The Transport Licensing Board [1971] E.A. 289.

23. Re an Application by Fazal Kassam (Mills) Ltd. [1960] E.A. 1002.

D 24. People v Board of Education of City of Chicago, 323 U.S. 733.

Tendwa, for the respondents.

[zJDz]Judgment

E Mwalusanya,J.: Judicial review is an important weapon in the hands of the judges of this country by which an ordinary citizen can challenge an oppressive administrative action. And judicial review by means of prerogative orders (certiorari, prohibition and mandamus) is one of those effective ways employed to challenge F administrative action. It is my conviction that the courts should not be too eager to relinquish their judicial review function simply because they are called upon to exercise it in relation to weighty matters of state. Equally however it is important G to realise that judicial review is not the same thing as substitution of the court's opinion on the merits for the opinion of the person or body to whom a discretionary decision-making power has been committed. It is for the executive to make administrative decisions. Parliament has empowered the executive to decide what it thinks necessary. It has to make H political and economic judgments. It may make a sound one or a bad one. The courts might have been able to make a better one than the executive made; but it must be remembered that parliament, no doubt for good reason, has not entrusted guidance to the courts.

I In the case at hand we are called upon to exercise judicial review by way of an order of mandamus. The applicant appeared

A in person and fought the case gallantly. The respondents were represented by counsel a State Attorney one Mr. Tendwa. At this juncture it should be pointed out that leave to apply for an order of mandamus was granted by Munyera J. in Misc. Civil Cause No. 14 of 1986. For all that we know mandamus is the procedure whereby a citizen B with sufficient legal interest may apply to the High Court to compel a public officer to perform a public duty entrusted to him. It is said it will be granted if the duty is in the nature of a public duty and especially affects the rights of an individual, provided there is no more appropriate remedy. The person or authority to whom it is issued must be either under a C statutory or legal duty to do something or not to do something; the duty itself being of an imperative nature. From the foregoing discussion it has been said there are few conditions to be proved in order for an order of mandamus to issue. These are:-

D 1. The applicant must have demanded performance and the respondents must have refused to perform.

2. The respondents as public officers must have a public duty to perform imposed on them by statute or any other law but it E should not be a duty owed solely to the state but should be a duty owed as well to the individual citizen.

3. The public duty imposed should be of an imperative nature and not a discretionary one.

4. The applicant must have a locus standi: that is, he must have sufficient interest in the matter he is applying for.

F 5. There should be no other appropriate remedy available to the applicant.

There has been a tendency by some of our judges to regard the above mentioned rules as immutable and fixed. With G respect, that is not true. The law on the prerogative orders is on the move to meet the changes of modern government. What was the position in 1960 as regards the contents of those rules is not the same now. The law has been constantly H changed by judges to see how effectively the law can protect an individual citizen from oppressive administrative actions. Lord Diplock of the House of Lords has soundly reminded us in the case of I.R.C. v Small Business: [1982] A.C. 617 at p.641 that:

I The rules (on prerogative orders) were made by the judges and by judges they can be changed; and so they have been

A over the years to meet the need to preserve the integrity of the rule of law despite changes in the social structure, methods of government and the extent to which the activities of private citizens are controlled by governmental authorities, that have been taking place continuously sometimes slowly, sometimes swiftly, since the rules were originally propounded. Those changes have B been particularly rapid since World War II. Any judicial statements on matters of public law if made before 1950 are likely to be a misleading guide to what the law is today.

C So in England the rules of procedure on prerogative orders has been greatly changed by case-law and some rules have been now embodied in the U.K. Supreme Court Act of 1981.

In Tanzania no rules of procedure have been made by the Chief Justice as he is empowered so to do under s.18(1) of the D Law Reform (Fatal Accidents and Misc. Provisions) Ordinance (Amendment) Act No. 55 of 1968. We follow the common law as developed and expounded by the case-law in England and our Tanzania judges. That is a blessing in disguise for if we had fixed and immutable rules, that would have fettered the judges to develop the law to meet changing E conditions. As it is now the law on prerogative orders is constantly being developed by our judges. They often take relief from decisions of other Commonwealth countries and in this respect the decisions in the 'Law Reports of the F Commonwealth - the section on Constitutional and Administrative Law Reports (Professional Books Ltd.) published since 1985 is useful and commendable. An example of the changing nature of our laws in this field is as follows. For a long time past it was thought that there could be no judicial review by means of prerogative orders for administrative G actions as distinct from judicial and quasi-judicial acts: see Reide J. in Re an Application by Bukoba Gymkhana Club: [1963] E. A. 478 (T); De Souza v Tanga Town Council: [1961] E.A. 377 (C.A.) and Mwesiumo J. in Northern Tanzania Farmers' Coop. Society Ltd. v W.H. Shellukindo: (Merits) [1978] L.R.T. n. 37. However now the H distinction between judicial proceedings and administrative proceedings is gone. The distinction has been "scotched" as a 'heresy' if I may be allowed to use the fine words of Lord Denning in the case of R. v Gaming Board ex-parte Benaim and Khaida: [1970]2 All E.R.528 (C.A.) And in Tanzania the distinction was scotched by the decision of the Tanzania I Court of Appeal in the case of Patman Garments Industries Ltd. v Tanzania

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A Manufacturers Ltd: Civil Appeal No. 15 of 1981 (unreported) delivered on 8/3/1982 by Mwakasendo J.A. on behalf of the Court.

It will be seen therefore that our judges have a heavy responsibility in this field to see that the law takes the correct direction that will benefit the individual citizen. That great American judge Benjamin Cardozo in his 'The Nature of the B Judicial Process' has underscored the judge's responsibility when he said:-

That court best serves the law which recognises that the rules of law which grew up in a remote generation may, in the fullness of experience, be found to serve another generation badly, and which discards the old rule when it finds that another rule of law C represents what should be according to the established and settled judgment of society.

D And for Tanzania the role of the judges is particularly pressing as pointed out by the former Chief Justice of Tanzania P.T. Georges in the foreword to the book "The Doctrine of Precedent" T.P.H. (1971) at p.viii that:

E In a society which is changing as rapidly as the Tanzania society of today, lawyers and judges should keep under constant critical examination their basic approach to the process of decision-making. If they stand still while the rest of the society moves, the unhappy result may well be that they will have failed to incorporate into the new pattern of progress the idea that the rule of law has F a necessary place in any community where the equality of all men and their human dignity are greatly valued. Failure in this important task would be a tragedy for the new society. This work is of the greatest importance in helping those engaged in the moulding of the law in this task of critical self-examination. G

Now it will be recalled that in 1984 by the Fifth Constitutional Amendment Act No. 15 of 1984 the Bill of Rights has H been incorporated in our 1977 constitution. The rest of the society has moved forward. So it will be a tragedy if our courts don't mould the rules on prerogative orders to match the changes in our constitution which lean in favour of the protection of individual citizen against an oppressive government. It is in that light that I proceed to discuss the rules of I procedure on mandamus on how they relate to the facts of this case

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A The background facts to this case are that in early 1983 the government decided that all suspected economic saboteurs be arrested and their property seized. They were to be tried before special tribunals. For the purpose of carrying on the duty of implementing the policy decision in question there was enacted the Economic Sabotage (Special B Provisions) Acts Nos. 9 and 10 of 1983 which incidently Prof. Issa G. Shivji has described it as a very 'notorious' piece of legislation (see page 12 of his paper 'Notes on the Status of Legal Rights in Tanzania: A Jurisprudential Treatment' one of papers presented at a Seminar to Commemorate 25 years of the Faculty of Law which was held between 20th to 25th C October, 1986 at University of Dar es Salaam). It was the Regional branch of the government that had to decide who were the suspected economic saboteurs. That means that it was the Regional Commissioner and his supporting staff who made the appropriate decisions and the implementation of the Law. As

regards the present applicant it is said he was D arrested on 30/3/1983 and some substantial property of his was seized. He was charged with hoarding property before the special tribunal in Case No.9 of 1983 and he was acquitted. That tribunal ordered that the sum of Shs.1,189,871/20 E realised from the sale of 2014 cases of beer be paid to the present applicant in a month's time from the day of judgment which was on 27/8/1984. The tribunal also ordered that the 79 cartons of Konyagi or its value (at the then current price) be paid to the accused within the same period of one month from the date of judgment which was on 27/8/84. But F todate the applicant has not been paid any of those items as ordered by the special tribunal. Concerning the value of the 79 cartons of Konyagi he said they were worth Shs.568,800/= (the value of Shs.7,200/= per carton) and the same has yet to be paid to him.

G Besides the beer and the Konyagi there were other property seized from the applicant but which was not a subject matter of the charge of hoarding in Case No. 9 of 1983. It was a variety of property that was seized and it included cement, lime, kerosine, a generator, a radio-call, pipes, sponge-mattresses etc. which together with the beer and Konyagi the police in their charge sheet of 20/5/83 estimated the property to be valued at Shs.10,000,000/=. But applicant H submitted at the hearing of this application that the property seized was worth Shs.11,675,680/= excluding the beer and the Konyagi.

I Again the applicant told this court that in February and May, 1984 a number of house-hold goods were taken away from his house

A by the government and he said these were worth Shs.5,000,000/=. He prays this court to order payment of the same to him.

Then again he stated that at the same relevant period some ten vehicles of his were impounded and grounded at Oyster B Bay Police Station Dar es Salaam pursuant to an order issued by Regional Commissioner of Kagera that applicant was an economic saboteur facing criminal charges in Bukoba. When he was acquitted the vehicles were returned to him but a number of spare parts had been stolen from them. He said that the stolen spare parts were worth Shs.14,948,365/=. He prayed this court to order payment to him that sum the equivalent value of the stolen spare parts. C

The applicant also stated that the government officials had seized and used his house for one year from May, 1983 to 4/5/1984. It is said the house was occupied by some policemen. The applicant prays to the court to order payment to him a reasonable compensation for the use of his house by the government agents. D

All in all the applicant asked the return of his seized property or compensation in lieu of the same. He estimated the value of his claim to be Shs.33,123,980/65.

On the other hand the two respondents through their State Attorney Mr. Tendwa made a feeble resistance to the claim. E They did not file any counter-affidavit. However Mr. Tendwa made an oral submission stating that the respondents were ready to pay Shs.1,435,112/70 to applicant which is lying in the suspense account of National Bank of Commerce in Bukoba. He said that, that sum represented the beer sold (being Shs.1,189,870/20 as ordered by the special tribunal) F

and some money realised from the sale of cement and kerosine. Then Mr. Tendwa conceded that his clients had seized a lot of property as per the list which is an annexture to the chamber application but they cannot account for the same. G They cannot tell if all the seized property was sold and if it was sold they cannot tell how much was realised and if there is any money they cannot tell where it is lying. If I may be allowed to interpose here, it beats my comprehension if what Mr. Tendwa told this court is true as to how such very high government official had the temerity to inform the court the way H they did notwithstanding the fact that both the Regional Commissioner and Regional Police Commander are new to that station. I cannot imagine any better example of the height of irresponsibility and the utter disregard to the rights of an I individual citizen whom they are supposed to serve. Be that as it may, concerning the house of the applicant, the respondents through their counsel denied that it was converted to government use for a

A year. Concerning the property allegedly seized in February and May, 1984 which the applicant said it was worth sh.5,000,000/= the respondents denied to have had seized it. As regards the stolen spare parts from the applicant's vehicles the respondents through their counsel denied responsibility on the ground that the same were lost through the B negligence of the police of Oyster Bay Police Station of Dar es Salaam and not Kagera Region. All in all the respondents admitted liability only for sh.1,435,112/70 representing the value of beer and some cement and kerosine.

Now let us see if the applicant has succeeded to prove the five elements which ought to be proved if an order of C mandamus is to issue. The first condition to be met is that the applicant must have demanded performance and the respondents must have refused to perform. This condition is a non-issue in this case, as it is conceded by the respondents that the applicant has demanded for his things since late 1984 but up to this day, he has not been given the D same. There are numerous letters to the respondents and other arms of the government whereof the applicant demanded to be given back his property but the prayers landed on deaf ears. Even if the demand for performance is made to the successors in office it is o.k. as pointed out by the East African Court of Appeal in the case of D.C. of Kiambu ex-parte E Ethan Njau [1960] E.A. 109 C.A. which cited the English case of R. v Mayor of Rochester (In the Parish of Strood) 119 E.R. 1490. In here the demand for performance was made to successors in office and that was proper. Therefore the first condition has been met without any controversy. F

The second element to be proved is that the respondents as public officers must have a public duty to perform imposed on them by statute or any other law but it should not be a duty owed solely to the state but should be a duty owed as well to the individual citizen. For example in Kenya in the case of Re Application by Mwau [1985] L.R.C. (Const.)444 G Simpson C.J. held that an order of mandamus could not issue against the Principal Immigration Officer to return a passport to the owner because under the Kenya Immigration Act, Cap 172 the duty to issue and withdraw passports is given to the Minister of Home Affairs and not the Principal Immigration Officer who merely acts on the instructions of the H Minister. Mandamus does not lie to a

public officer who is acting purely as agent of the state for a duty owed to the state and not to the individual citizen. This is because the granting of mandamus would be tantamount to giving relief I against the government which could not have been obtained in proceedings against the government

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A under the Government Proceedings Act No. 16 of 1967. In this respect Wade and Bradley in their book Constitutional Law 7th Ed. (1965) Longmans at p.664 state:-

The order does not lie against the Crown. If a government department is acting as agent of the Crown and is responsible only to B the Crown having no duty to the subject in the matter, it is not amendable to the orders of the court in the exercise of its prerogative jurisdiction in granting or refusing it.

C And the following passage from Judicial Review of Administrative Action by S.A. de Smith (2nd Ed. p. 462 was cited with approval by Goudie J. of the High Court of Uganda in the case of Shah v A.G. of Uganda (No.3): [1970] E.A. 543, he said:

D In mandamus cases it is recognised that when a statutory duty is cast upon a Crown servant in his official capacity and the duty is one owed not to the Crown but to the public any person having a sufficient legal interest in the performance of the duty may apply to the Courts for an order of mandamus to enforce it. Where however a duty has been directly imposed by statute for the benefit of E the subject upon a Crown servant as persona designata and the duty is to be wholly discharged by him in his own official capacity, as distinct from his capacity as an adviser to or instrument of the Crown, the Courts have shown readiness to grant applications F for mandamus by persons who have a direct and substantial interest in securing the performance of this duty. It would be going too far to say that whenever a statutory duty is directly cast upon a Crown servant that duty is potentially enforceable by mandamus G on the application of a member of the public for the context may indicate that the servant is to act purely as an adviser to or agent of a Crown, but the situations in which mandamus will not lie for this reason alone are, it is thought, comparatively few.

H Like Gourdie J. I adopt the reasoning in the above extract.

And it has also been pointed out that mandamus does not lie against a public officer as a matter of course. The courts are reluctant to direct an order of mandamus against executive officers of a government unless some specific act or thing which the I law requires

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A to be done has been omitted. In this respect Mr. Prem in his work Law of Writs in India, England and America 2nd Ed. at p. 385 tells us that:

Courts should proceed with extreme caution for the granting of the writ which would result in interference by the judicial B department with the management of the executive department of the government. The courts will not intervene to compel action by C an executive officer unless his duty to act is clearly established and plainly defined and the obligation to act is premptory.

That is the statement on the law as regards the second element for the granting of an order of mandamus.

In the case at hand, concerning the 2nd respondent (the R.P.C.) there can be no doubt that there is a clearly defined D public duty cast upon him under the Police Force Ordinance Cap 322 first to the state and also to the individual citizens. He is empowered to arrest offenders and send them to court. After the finalisation of the case he is obliged to return the E seized goods to those who have been cleared by the courts. The police officer has an obligation and not a discretion to return the seized goods to the owner once he has been acquitted in court and no other charges are envisaged against him.

As regards the 1st respondent (the R.C.) it could be argued that ordinarily no public duty is cast upon him by law of F arresting offenders and seizing their goods and then returning the goods to the owners who have been cleared by the courts. However if we consider the implementation of the relevant legislation that is the Economic Sabotage (Special Provisions) Acts no. 9 and 10 of 1983 it will be found that its implementation was equally cast upon the regional branch G of the government. The regional authorities under the R.C. would sit down and decide who was the suspected economic saboteur and then instruct the police officers to arrest the suspect and seize his goods. The suspect would then be sent for trial at the special tribunal. It will be seen therefore that under the relevant legislation the R.C. had a heavy H hand in the arrest and seizure of the goods of the suspected saboteurs and so he is equally obliged to have a heavy hand in the return of the goods to the suspects who have been cleared by the courts. If the R.C. found that the acquittal, was I against the weight of evidence, he could advise the government to nationalise the seized goods on payment of compensation. In

A fact the Kagera R.C. once used that weapon in case of vehicles of a certain suspect who was acquitted by the court, and he accordingly advised the government to nationalise the vehicles. The government conceded and by virtue of the Kagera Transport Assets (Acquisition and Regrant) Act No.1 of 1984 the vehicles in question were nationalised but the B owners were to be paid full, fair and adequate compensation. That shows how the R.C. had a hand in the matters and therefore he is equally duty bound to see to it that the innocent victims get their seized goods as soon as possible.

If there is any doubt as to the obligation of the law enforcement agencies and other members of the executive branch of C the Government in returning the seized goods to the suspects who have been cleared by the courts I wish to point to Article 17(2) of the Universal Declaration of Human Rights of 1948 which provides that no one shall be arbitrarily deprived of his property. By Article 7(1) of our Constitution as amended by Act No. 15 of 1984 the government and all D it is agencies having executive, legislative or judicial functions are obliged to take into account and implement all the provisions of Part II of the 1st Chapter of the Constitution which includes the Universal Declaration of Human Rihts of 1948 as provided by Article 9(f) of our Constitution. The Tanzania C. J. F.L. Nyalali in his address on the 'Bill of E Rights' to Law

Society of the University of Dar es Salaam published in the Daily News of 7th September, 1985 said inter alia on effect of Article 7(1) of the Constitution:

F It can thus be said that although the failure by any person or state organ to observe any of the provisions of the Universal Declaration of Human Rights will not attract legal censure or invalidation by courts, I have no doubt that the courts are required to G be guided by it in applying and interpreting the enforceable provisions of the Constitution and all other laws.

It goes without saying that the R.C. and R.P.C. were duty bound in performing their duties to be guided by the provisions H of the Universal Declaration on Human Rights which includes the duty not to arbitrarily deprive someone of his property. And I may also point out that in our Bill of Rights in our Constitution under Article 24 the right to property is guaranteed and can only be taken away by law providing adequate compensation. Although justiciability of the Bill of I Rights comes into force on 16/3/1988, yet the implementation of the provisions of the Bill of Rights by every

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A organ of the government started on 1/3/1985 by virtue of Act No. 16 of 1984. And so the R.C. and the R.P.C. had and still have an obligation in law to return the seized goods or its value to the owners.

It cannot be said that the duties which were cast upon the R.C. and R.P.C. by the law on economic saboteurs were owed solely to the state. They had a duty as well to perform which they owed to the affected individual citizens. The B situation here is analogous to the facts in the case of Shah v A.G. Uganda (Supra) where it was held that the Treasury Officer in his duties of making payments out of the State Coffer was not acting simply in his capacity as a servant of the state for a duty owed solely to the state but was also acting on the fulfilment of the duties cast upon him to the affected C citizen who had a right to payment from the government funds by a decree of a court as a decree holder. And so an order of mandamus was issued. And a similar case from England to the same effect is the case of R. v Commissioners for Special Purposes of the Income Tax (1888) 21 Q.B.D. 313 (per Lord Esher at p. 317) which held that mandamus D will lie to compel a Treasury Officer to make payments to a citizen who had sufficient interest - in here it was a refund to a taxpayer who had overpaid tax. Now in the same breath, in the case at hand I am satisfied that the two respondents E have a legal duty to the aggrieved citizens who have been cleared by the courts to have the seized property returned to them.

Now the third condition that has to be fulfilled in order for mandamus to issue is that the public duty imposed on the public officer should be of an imperative nature and not a discretionary one. And the learned author Dr. Peter A. F Oluyede in his book of Administrative Law in East Africa (1973) E.A. Literature Bureau at p. 192 quotes the decision of the former Chief Justice of Tanzania Mr. Justice P.T. Georges in the case of In the Matter of an Application by G Mohamed Aslam Khan: Misc. Civil Cause No. 22 of 1966 (unreported) as authority for the preposition that there can be no order of mandamus for a discretionary duty. In that case Georges C.J. refused to issue an order of mandamus to compel police officers to prosecute

trespassers on somebody's land on the ground that the police were exercising a H discretion. It was said the police had a discretion of prosecuting an offender or not prosecuting him. However on my part I do not agree with Dr. Peter A. Oluyede that the case turned out on the matter of discretion. All it decided was that a charge of criminal trespass cannot arise until the ownership of the land is clearly established in a civil court. A bonafide I belief that the accused is asserting a claim of right to

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A property that belongs to him (though mistaken) is a complete defence to the charge of criminal trespass - see Saidi J. in Saidi Juma v R. [1968] H.C.D. n.158 and Mapigano J. in the case of R. v Mohamed s/o Salehe: [1975] L.R.T. n.32. Therefore all what Georges C.J. decided in that case was that an order of mandamus could not issue because the B charge of criminal trespass could not mature until first the question of ownership of land was established in a civil case.

On the question as to whether the police have a discretion or not to prosecute offenders I would prefer to follow the C decision of the Court of Appeal of England in the case of R. v The Commissioner of Metropolitan Police ex parte Blackburn: [1968] 2 Q.B.118(C.A.). Lord Denning held in that case that in the carrying out of the duty of enforcing the law the police have a discretion whether to prosecute or not with which the courts would not interfere; but that if the D police are guilty or persistent and serious failure to ensure that the law is enforced in relation to any significant part of the law an order of mandamus will issue. This is because failure to act would be an abuse of the discretion cast upon them. So the position in law today is that the courts will intervene by an order of mandamus where there is an abuse of a E discretion; but the court will not dictate the decision but will compel the officer to hear and determine the matter in accordance with the law. And in this regard I find that Sir Kenneth O'Connor C.J. correctly stated the law in this field in F the Kenyan case of ex parte J.C. Patel (1954) 27 K.L.R. 140. In that case the Principal Immigration Officer refused an entry permit to an applicant because he was satisfied that the said applicant was not a 'person intending to carry on a trade, business or profession other than a prescribed profession, on his own account in the Colony'. In an application for an order of mandamus it was argued on behalf of the Principal Immigration Officer that mandamus will not issue to G enforce the performance of a statutory duty, the performance or non-performance of which is a matter of discretion. However Sir Kenneth O'Connor C.J. on behalf of the court stated that while it was true that the court cannot dictate the H decision in a matter in which a discretion to decide is conferred by a statute, yet in such cases mandamus will go to the body to compel it to hear and determine according to law. Therefore the existence of a discretion is no longer a bar to issuing an order of mandamus. In the case at hand there is no contention that the two respondents were exercising a discretion which they have under the law. On my part I find that it is crystal clear that the two respondents have a public I duty of an

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A imperative nature to return the seized goods to the owners. The two respondents have no power to nationalize the goods. If it is argued that they had a discretion to decide as to what next step to take, I would answer that, that is an abuse of a discretion, because they have been dilly-dallying for the past two years and half without any action; and so they cannot any longer be allowed to continue to abuse their discretion if any. B

The fourth condition which must be met if an order of mandamus is to issue is that the applicant must have a locus standi: that is he must have sufficient interest in the matter he is applying for. In the case at hand there is no controversy that the applicant has sufficient interest in the matter because it was his property that had been seized by the two C respondents. He is therefore not a mere crank or busybody. However at this juncture it will not be out of place to make certain observations as regards the trend of the law in this field. There are two Schools of though on the matter. One D school of thought takes the narrow view and it is represented by the decision of the House of Lords in the case of Gouriet v Union of Post Office Workers and Others: [1978] A.C. 435. This school holds that only the plaintiff with an interest in the subject matter can sue but no other citizen as a member of the public can do that. In short the plaintiff E must have a private right or must suffer a damage peculiar to him. It is argued that it should be so to avoid liability of the respondents to an indeterminate number of people. The other school of thought to which I subscribe takes a liberal or F extended doctrine of locus standi; and the same was taken by Lord Denning in the Court of Appeal in England in the case of Gouriet v The Union of Post Office Workers (supra) and more recently by the Court of Appeal in New Zealand in the case of Finnigan v New Zealand Rugby Football Union (Incorporated) [1986] L.R.C. (Const.) 877 G by Cooke J. This school stands for the proposition that a member of the public can impugn an important decision affecting the nation as a whole i.e. of national and public interest, though it does not personally affect him. However it is said the matter must have a national or international implications. This school of thought can be supported on policy and H legal grounds. On policy grounds it is a useful doctrine because public interest litigation is for the benefit of the whole community at large. On legal grounds it cannot be accepted that respondents may be liable to an indeterminate number of people, because the courts are there to exercise control of the unruly horse. As Lord Denning pointed out in the case I of Enderby Town Football Club v The F.A. [1971] 1 All E.R.215 that:

A With a good man in the saddle, the unruly horse can be kept in control. It can jump over obstacles. It can leap fences put by fictions and come down on the side of justice.

Therefore there is no reason as to why we should stick to the narrow school of thought which denies protection to large B section of the community.

Lastly the fifth condition that has to be met in order to secure an order of mandamus is that the applicant should have no other remedy. It is said that when there is no specific remedy, the court will grant a mandamus that justice may be done. C So it is argued that mandamus does not lie against a public officer as a matter of course and as of right. For example in Re an Application by the A.G. of Tanganyika [1958] E.A. 482 (K) Cram Ag. J. held that prerogative

orders will not issue if there is a statutory remedy by way of appeal. And in Tanganyika a similar stand was taken by Lowe J. in the D case of In Re Patel, (1956) 2 T.L.R.(R) 227. And the learned author Dr. Peter A Oluyede in his work Administrative Law in East Africa (1973) E.A.L.B. at p.192 holds similar views expressed above and finds support in the decision of the former Chief Justice of Tanzania P.T. Georges in the case of An Application by Mohamed Aslam E Khan Misc. Civil Cause No. 22 of 1966 (unreported). However on my part I would prefer the view of judge of the High Court of Kenya, Chanan Singh J. in the case of Shah Vershi Deushi & Co. Ltd. v The Transport Licensing Board: [1971] E.A. 289 (K). In there he held that the existence of a right of appeal is only a factor to be taken into F account in the exercise of the discretion and cannot be a bar to an application. In Tanganyika a similar stand was taken by Sir Ralph Windham C.J. in the case of Re an Application by Fazal Kassam (Mills) Ltd: [1960] E.A. 1002 (T). G Therefore in the case at hand even if it may be said that the applicant has an alternative remedy of an ordinary suit or action in damages, I would hold that, that factor is only one point to be taken into account in exercising my discretion as to whether I should issue an order of mandamus or not.

H It may be argued and in my view very correctly so, that the applicant has no alternative remedy at all. The right to damages by a suit against the government is illusory and is as good as zero. As rightly argued by Mr. Michael K.B. Wambali a suit against the government requires the written consent of the Minister for Justice, and such consent may not I be forthcoming. Mr. Wambali has argued in his paper 'The enforcement of the Bill of Rights against the

A Government', which was one of the papers presented at a Seminar held between 20th to 25th October, 1986 to Commemorate the Silver Jubilee of the Faculty of Law of the University of Dar es Salaam at pp. 3-4 that:

B The intricacy comes because, the overall effect of the requirement is to request the government to allow itself being sued in an open court over breaches of fundamental rights which very often might be touching very sensitive state matters, which in most cases might sound politically justifiable. Thus in most cases, the Minister would most likely defend State interests at the prejudice C of an individual interest, to bring the matter in an open court of law on the basis of the Bill of Rights. The Minister could easily make use of Article 30 (1) of the Constitution which puts a proviso to the enforcement of individual rights that they may be overrode in public interest. D

And so the Minister of Justice may refuse consent for what he considers to be public interest; and he may do so for any other reason he thinks fit. So a suit against the government is a great risk, and one does not wish to run the hazard of E such action.

However as I stated earlier my stand is that even if there is an alternative remedy, that is only a factor to be taken into account in my exercise of the discretion entrusted upon me. Now how should I exercise the discretion? A helpful guide F can be gathered from the observations made by Gourdie J. of the High Court of Uganda in the case of Shah v A.G. of Uganda (No.3): (supra) where at pp.550 - 551 he said:

G I have been unable to find many English authorities on the principles which the Court should adopt in deciding whether or not to exercise a discretion in favour of mandamus, assuming that there may be a discretion in this case. The English courts are always loath to 'crib and confine' the exercise of a discretion. Viewed broadly however, I see no reason to disagree with an American H Court statement of principles to the effect that the court should take into account 'a wide variety of circumstances, including the exigency which calls for the exercise of its discretion, the consequences of granting it, and the nature and extent of the wrong or I injury which would follow refusal... and it may be granted or refused

A depending on whether or not it promotes substantial justice - see the case of People v Board of Education of City of Chicago 323 U.S. 733.

Now applying the principles enunciated above which I adopt I find that this is a fit case which loudly cries for exercising B the discretion in favour of the applicant. The applicant has been deprived a substantial part of his property since he was acquitted by the special Tribunal on 27/8/1984. It is now two years and half that the respondents have denied him a C redress. Indeed he has been greatly wronged. I hold that he deserves an immediate order for redresss, because the injustice already done to him is substantial and unwarranted. I will accordingly issue an order of mandamus.

Finally I note that the applicant has inter alia claimed some special damages for the wrong done to him. For example he D claims damages of Shs.14,948,365/= for the alleged spare parts of his vehicles that were stolen; and he also claimed damages for the use of his house by the government. These claims are improper as this is not the appropriate forum. Those claims should be a subject of a separate suit in an ordinary action for damages. An order of mandamus can only E be made for the return of the seized goods for compensation for the value of the same. And as regards the claim of Shs.5,000,000/= for domestic items allegedly seized in February and May, 1984 I do not find it proved that it was so. That should be a subject of a separate suit as well.

F I would order that the respondents should immediately hand over to the applicant his goods that were seized as listed on annexure A to the summons of Chamber application or if they don't have the goods they should pay him the value of the same which is Shs.11,675,680/=; they should pay him his beer and kerosine or their value Shs.1,435,112/00 which is G allegedly lying in the suspense account of N.B.C. Kagera; and they should also give him his 79 cartons of Konyagi or pay him Shs. 568,800/= the value of the seized Konyagi. Consequently the applicant is to be given by the two respondents all the mentioned goods and if they are not there, they should pay him the total value of Shs. 13,679,592/70. H An order of mandamus to issue accordingly. The application is allowed with costs.

I Application allowed.

A

[zRPz]ALFONS MOHAMED CHILUMBA v DAR ES SALAAM SMALL INDUSTRIES COOPERATIVE SOCIETY 1986 TLR 91 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mapigano J

B
CIVIL APPEAL 16 OF 1985
Flynote
Law of Limitation Act - Acknowledgement of claim after the expiry of period of limitation prescribed - Whether effectual - S.27 and 28(4) Law of Limitation Act, 1971
-Headnote
C The plaintiff sued the defendant claiming arrears of salary. The suit was dismissed on a preliminary point that it was time-barred. On appeal the plaintiff contended that the lower court erred in that it non-directed itself to an D acknowledgement that had been made by the defendant employer. The acknowledgement was made after the expiration of the period within which the claim could be instituted.
E Held: by virtue of s.28(4) of the Law of Limitation Act, 1971, no acknowledgement shall be operative for the purposes of s.27 if it is made after the expiration of the period of limitation prescribed for the proceeding in respect of the right of action to which the acknowledgement relates.
Case Information
F Appeal dismissed.
No case referred to.
[zJDz]Judgment
G Mapigano, J.: This is a claim for arrears of salary. The learned resident magistrate dismissed the suit on the preliminary point that it was time-barred, citing the provisions of Order 7 rule 6 of the Civil Procedure Code, section 3(1) of the Law of Limitation Act, 1971 and article 7 of the First Schedule to that Act. The plaintiff Alfons Mohamed Chilumba is dissatisfied and has lodged this appeal, contending that the learned magistrate erred in that he non-directed H himself to an acknowledgement that had been made by the defendant employer on 15 June 1984. It is common ground that the period of limitation in relation to this action is six years.
I In my view the learned magistrate cannot be faulted. Order 7 rule 6 C.P.C. provides that where the suit is instituted after the

A expiration of the period prescribed by the law of limitation, the plaint shall show the ground upon which exemption from such law is claimed. In other words, where but for some ground of exemption from the law of limitation, a suit would prima facie be barred by limitation, it is necessary for the plaintiff to show in his plaint such ground of exemption. B If no such ground is shown in the plaint, it is liable to be rejected under rule 11(c) of the same Order.

Similar provisions are to be found in the Indian Code of Civil Procedure and the two learned commentators Chitaley and Rao make the following observation:

C The plaintiff will not be allowed to show the ground of exemption at the trial by putting in evidence any documents such as acknowledgements of liability. But the Court may, save in exceptional circumstances, allow the plaint to be amended by making the necessary allegations. It is sufficient that the ground of exemption is apparent on the face of the plaint. It is not necessary that D the plaint should specifically, and in so many words, claim the ground of exemption.

E I like and will adopt this exposition. I am not quite satisfied that acknowledgement as a ground of exemption from the law of limitation is sufficiently pleaded or shown in the plaint in this case. And for the reason I am going to give presently, it would have been pointless for the learned magistrate to allow the plaint to be amended in that regard. F

By the appellant's own pleading, vide para 7 of the plaint, his employment with the respondent was determined on 30 October, 1977. I take that as the date on which the cause of action arose i.e. the date from which the period of limitation G started to run. He instituted the proceeding on 28 June, 1984 i.e. over six and half years after the accrual of the cause of action. As observed, he now contends that the period of limitation should commence from 15 June 1984 the date on H which the respondent wrote him a letter marked annexure K, which he describes as an acknowledgement of the claim.

We should advert to the provisions of the Law of Limitation Act, 1971. Under section 27(3) of that Act, where a right of action has accrued to recover a debt or the pecuniary claim and the person liable or accountable therefore acknowledges I the claim, the right of action in respect of such debt or pecuniary claim is deemed to have accrued on, and not before, the date of the acknowledgement.

A However, by section 29(4) of the Act, no acknowledgement shall be operative for the purposes of section 27, if it is made after the expiry of the period of limitation prescribed for the proceeding in respect of the right of action to which the acknowledgement relates.

The letter in question strikes me as vague. Quite possible that it contains a sufficient acknowledgement within the meaning B of section 27 of the Law of Limitation Act. Even so, it is ineffectual under law, for it is evident that at the date the said acknowledgement was made, the 15 June 1984, the claim so acknowledged had already become barred by time with effect from 30 October, 1983.

C In the circumstances I am constrained to uphold the decision of the lower court and dismiss the appeal. As the respondent did not appeal I make no order as to costs.

Appeal dismissed. D

1986 TLR p93

E

[zRPz]BASILIZA B. NYIMBO v HENRY SIMON NYIMBO 1986 TLR 93 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Lubuva J

F
17th October, 1985
MATRIMONIAL CAUSE 10 OF 1983
Flynote
Family Law - Dissolution of marriages - Christian marriage dissolved by a Kadhi before the passing of the Law of Marriage Act, 1971 - Whether marriage validly dissolved - S.2 Matrimonial Causes Ordinance, G
-Headnote
The petitioner went through a christian marriage with the respondent on 22nd May, 1965. By 1973 the marriage had been blessed with four children. However from 1971 the marriage was burned with regular domestic squabbles and H problems. The petitioner found out from, the Registrar of Marriages that the respondent was previously married according to Christian rites in 1959 and that marriage was purported to be dissolved by a Kadhi on 8th May, 1965. She argued that at the time of her marriage to the respondent the latter was not competent to marry because there was a I subsisting
1986 TLR p94
LUVUBA J
A marriage between him and one Alaneja. So, she sought, inter alia, her marriage with the respondent be declared null and void.
Held: (i) Before enactment of the Law of Marriage Act, 1971 Christian marriages could validly be dissolved by the High B Court as provided under section 2 of the Matrimonial Cases Ordinance, Cap. 364;

(ii) the Kadhi could not legally dissolve the christian marriage between the respondent and Alaneja celebrated in 1959;

(iii) the marriage between the respondent and the petitioner in 1965 was a nullity because the respondent was C then incompetent to marry.
Case Information
Order accordingly.
D No case referred to.
Miss Mlaki for the petitioner
[zJDz]Judgment
Luvuba, J.: This is a petition in which the petitioner one Basiliza Gobret Nyimbo is seeking the E marriage to be declared null and void, to be granted custody of the children, maintenance of the children by the respondent and condemnation of the respondent to pay the costs of the proceedings as well as other further reliefs as the court may deem just. As the respondent could not be served in the normal manner, substituted service was effected by F publication in the issue of the daily News. The petition was thus proceeded exparte in proof.
From what I have heard of the petitioner's exparte evidence as well as the petition itself supported by her affidavit, the G historical background of the matter can briefly be stated.

That on 22nd May, 1965 the petitioner went through a Christian Marriage with the respondent at St. Joseph Cathedral Dar es Salaam. That at the time of that marriage H ceremony, the petitioner did not know that the respondent still had a subsisting marriage with another woman. That prior to that marriage the petitioner was made to understand that the previous marriage of the respondent to Alaneja had validly been dissolved. From the marriage with the petitioner, four children were born respectively in 1966, 1969, 1971 and 1973 by the names of Caroline, Antwelukye, Anna and Veri. The originals of the birth certificates' were produced in court for verification. It is further alleged by the petitioner that as from, 1971 on-wards, her I

1986 TLR p95

LUVUBA J

A marriage with the respondent was unfortunately characterised with regular domestic problems and squabbles which according to the petitioner were attributed to the respondent's behaviour of drunkenness and involvement with other women. In such predicament, the petitioner found out from the Registrar of Marriages that the respondent's previous B marriage which had been officiated in a Christian Lutheran Church in Dar es Salaam on 13th December, 1959 had not bee validly dissolved. The said previous marriage of the respondent to one Alaneja Mtekele was purported to have been dissolved before a Kadhi on 8th May, 1965 in Dar es Salaam. With such finding on the part of the petitioner in regard to C the marriage between the respondent and the said Alaneja Mtekele, the petitioner decided to leave the matrimonial home. She has since been living on her own together with three of the children of the marriage as the fourth child has lately been staying with the respondent attending school. On the basis of such evidence, Miss Mlaki learned counsel from D the Tanzania Legal Corporation who appeared for the petitioner argued that as the petitioner at the time of their marriage was not aware of a subsisting marriage, the marriage between the petitioner and the respondent was a nullity. Miss Mlaki's submitted further that prior to the enactment of the Law of Marriage Act, 1971, a civil marriage could only be dissolved validly by the High Court in which case the respondent's purported dissolution of his christian monogamous E marriage before a Kadhi was of no legal validity. The respondent having gone through a ceremony of marriage with the petitioner at a time when there was an existing marriage with Alaneja, such a marriage was a nullity under Section F 38(1)(c) of the Law of Marriage Act, 1971, it was submitted by learned counsel Miss Mlaki. She urged the court to declare the marriage a nullity and grant the custody of the children to the petitioner as well as providing for the maintenance of the children by the respondent. G

In regard to a void ceremony of marriage, section 38 (1)(c) of the Law of Marriage Act, 1971 provides:

H ... A ceremony purporting to be a marriage shall be a nullity if either party is incompetent to marry by reason of an existing marriage.

Kadhi as defined under Section 2 of the Law of Marriage Act, 1971 means a Muslim priest or preacher or a leader of a I Muslim Community who has been licenced under the Act to celebrate

1986 TLR p96

LUVUBA J

A marriages in Islamic form. From this definition, it is quite clear that a Kadhi is properly authorised under the law to officiate in marriages of Islamic form. In other types of marriages he has no power to officiate. In the instant application, B from the ex parte evidence, the marriage of the respondent to Alaneja was Christian in form. Such a marriage could not validly be dissolved before a Kadhi as the respondent purported to do on 8th May, 1965. The purported dissolution was of no legal validity. The marriage and indeed civil marriages as a whole could validly be dissolved at that time by the C High Court as provided for under Section 2 of the Matrimonial Cause Ordinance, Chapter 364, of the Laws which was repealed by the Law of Marriage Act, 1971. In these circumstances, with a futile dissolution of the marriage between Alaneja and the respondent before an improper minister of religion, the Kadhi, the respondent was incompetent to marry D by reason of the said existing marriage. That being a Christian, monogamous marriage, the respondent could not legally undergo another ceremony of marriage as he did with the petitioner on 22nd May, 1965. As rightly submitted by Miss Mlaki, the subsequent marriage of the respondent to the petitioner was therefore in my view, not only void but a nullity on E account of the existing undissolved previous marriage of the respondent to Alaneja.

In the result, from the ex-parte evidence as adduced by the petitioner in addition to her affidavit as well as the submissions made on her behalf, I am inclined to believe that her claim in the matter is sufficiently credible and would F accordingly allow the petition with the following attendant order as prayed:

1. The marriage celebrated between the Petitioner and the respondent on 22nd May, 1965 illegally is declared null and void.

G However, with such finding and the resulting declaration of the marriage as null and void, that would not mean the end as well of the responsibility over the children born of the marriage, on the part of the parents. It is common knowledge H that in any proceedings for divorce, nullity or judicial separation, on conclusion of such proceedings, one aspect of paramount concern to the court is to ensure that satisfactory arrangements are made for the care and welfare of the children born of the marriage until they reach the age of 18. Therefore, the question of the maintenance of the children is I unavoidably the responsibility of the parents and the marriage having

A been a nullity is no valid excuse for evading this onerous task. Section 129 of the Law of Marriage Act 1972, provides specifically on the duty to maintain the children. Under this provision, unless it is otherwise provided by agreement, it is the duty of the father of the children to maintain the children whether such children are in his custody or B the custody of somebody else. In this petition, evidence has been led to show that except for a short period lately when the 3rd born of the marriage has been taken in the custody of the respondent attending school, the rest of the children have otherwise been in the custody of the petitioner.

Consequently, as the petitioner has applied to be granted the C custody of the children, I am satisfied that it is in the interest and welfare of the children to make the following orders as well.

II. Except for Coroline who was born in 1966 and is at liberty to chose, custody of the other children Atwelukye, Anna and Veri is granted to the petitioner with reasonable access to the respondent. D

III. The respondent to pay maintenance for the Children in arrears from 1975 to the date of judgment at the rate of 1,500/= per month and thereafter at the end of every calendar month i.e. 30th through the court. E

IV. The respondent to pay the costs of this petition.

F As for the distribution of the property which was jointly acquired during the purported marriage, such an aspect though it was referred to by the petitioner at the hearing of the petition was however not specifically pleaded and brought out in the petition. This valid though it may well be, is fundamental issue which should be taken up right from the time when the G petition is filed. Among other reasons, this is due to the fact that if a fundamental issue is taken up from the time the petition is initiated the respondent is afforded the opportunity to know of it in advance and in that way he would have H had the chance of raising any defence on the matter if any. I would therefore not pursue it any further at this stage.

Order accordingly. I

1986 TLR p98

A

[zRPz]KAZUNGU LUSHINGE v JUAKALI DEGULLA 1986 TLR 98 (HC)

Court High Court of Tanzania - Mwanza

Judge Mushi J

B

September 21, 1985.

(PC) CIVIL APPEAL 38 OF 1982

Flynote

Customary Law - Compensation under customary law - Whether a parent is under an obligation to settle the debts of his adult independent son - Sukuma customary law.

Customary Law - Repugnancy to natural justice and public policy - Custom requiring a parent to settle the debts of his adult C independent son - Whether just and in accord with public policy.

-Headnote

The respondent had obtained judgment against the appellant's son. Accordingly, the latter was required to pay 30 bag D s of millet or its equivalent value in money. In settlement of the judgment debt the respondent applied to court for the attachment of the appellant's cattle. The court allowed the application on the basis of a custom said to exist among the Sukuma that a father could be required to settle the debts of his son. Dissatisfied, the appellant appealed to the High Court. E

Held: (i) Before the court applies any customary law, it must first be proved by adducing evidence that such a custom exists and is practiced in the particular area and by the community concerned; in this case no evidence was adduced to F show the existence of the custom whereby a parent is bound to settle the debts of his adult independent son;

(ii) any custom whereby a person is punished or is made to part with his property on account of the independent acts of another adult person is contrary to the principles of natural justice which must override any such custom; G

(iii) the custom alleged in this case also cannot stand for being contrary to public policy which requires every adult to live on his own sweat and to be accountable and responsible for his actions.

Case Information

Appeal allowed H

Cases referred to:

1 . Meta Tebera v Isakwe Rongoya, [1967] H.C.D.119

I 2. Masero Mwita v Rioba Masero, [1968] H.C.D. 199

3. Mariba Wanyangi v Romara, [1977] L.R.T.7

1986 TLR p99

MUSHI J

A 4. Rashid Neyura v Athumani Mayunga, High Court at Mwanza, (PC) Ci v App. No. 88/1982 (unreported)

5. Gwao bin Kilimo v Kisunda bin Ifuti [1938] 1 TLR (R) 403.

[zJDz]Judgment

Mushi, J.: One Juakali Degula instituted proceedings against one Shipiling Kazungu claiming about 30 bags of a kind of millet called uwele, worth about Shs.1,900/=? Judgment was entered in favour of Juakali to B be given 30 bags of uwele or its equivalent value in money. Shipilingi did not settle the decree and so the decree holder applied to the court for the attachment of the cattle of the judgment-debtor. The Primary Court Magistrate C granted the order to attach the cattle of one Kazungu Lushinge. The attachment order was dully executed and a number of cattle belonging to the appellant, Kazungu Lushinge, were attached. After the attachment, Kazungu complained to the Court in the following terms and I quote from page 2 of the Primary Court Proceedings: of 20/5/81: D

"Kazungu Lushinga: Mdeni - Muhukumiwa ni mtoto wangu. Kwa wakati huu anajitegemea anao watoto na kazi anayofanya kupokea mshahara na kupeleka kwake. Ng'ombe zilizokamatwa ni zangu mdeni Mhukumiwa yeye hausiki". E

After this complaint, the Primary Court correctly commenced objection proceedings by serving notices on the other parties and hearing date was fixed. On the date set for hearing the objector gave evidence in which inter alia stated and I quote:- F

SM 1:Kazungu Lishinge, Miaka 50, Msukuma -Amethibitishwa: Mdeni mhukumiwa ni mtoto wangu alikuwa akifanya kazi kwa mdai - mhukumiwa. Kazi hiyo alikuwa walipeana wenyewe wakati mdeni-mhukumiwa kwangu alikuwa katoka na alikuwa na G wake na watoto wake. Mdeni - mhukumiwa mshahara alikuwa akitumia peke yake na familia yake. Baadaye

wamegombana na kushtakiana na sikuelewa kesi hiyo. Mara nimeshtukia ng'ombe wangu wanawagwa hapo nyumbani. Mimi sikuwa na kosa na H mdai - mhukumiwa. Hapo mimi nilishangaa sana.

Also at the same hearing the judgment-debtor - Shipilingi Kazungu stated and I quote: I

1986 TLR p100

MUSHI J

A Mdeni-Mhukumiwa:- Shipilingi Kazungu, miaka 26, Msukuma - Amethibitishwa: Ng'ombe waliokamatwa sio zangu. Haitoshi kwa mzee (Mpingaji) nimehama kuanzia mwaka 1975 na kuwa na mji wangu. Nikiwa na mji wangu mdai-Mhukumiwa, alinijia kwenda kufanya kazi kwake. Nimefanya kazi kwake hadi 1979 an kuomba pesa zangu. Kwa wakati huo nilikuwa nikichukua B kidogo kidogo idadi sasa niliyokuwa nikidai ni Shs.2,000/=. Mara nilianza kudai naye akisema angenipa. Nilienda hata kwa balozi. Mara mdai-mhukumiwa aliniwahi kunishtaki Mahakamani.

C After hearing the evidence as to the ownership of the attached cattle, the Primary Court made a finding on the objection raised by the objector. The Primary Court rejected the complaint without deciding on the ownership of the cattle. The Primary Court dwelt on the number of cattle attached which was not an issue at least in accordance with the D court records. The principal issue was whether the cattle which were attached belonged to Kazungu Lushinge or to judgment-debtor. The objector appealed against the Primary Court decision to the District Court. The District Court decision was that the appeal had no merits because, although the cattle belonged to the appellant as the judgment debtor E was his son, he had the obligation customarily to settle the debt of his son. The whole judgment is very short and for easy reference I reproduce it here and it reads:

F AMRI "Haya ni maombi ya kukataa kukamatiwa mali: Mjibu rufani Shipilingi s/o Kazungu alidaiwa na mjibu rufani Juakali Degula madai ya magunia 30 ya mawele thamani shs.1,900/= na alihukumiwa kushindwa, na baada ya kushindwa kulipa, mdai alikaza G hukumu na ng'ombe 15 zilikamatwa toka kwa Boma la mpingaji Kazungu s/o Lushinge. Ushahidi uliotolewa unaonyesha kuwa mdaiwa ni mtoto wa mpingaji na ng'ombe zilizokamatwa ni za baba wa mdaiwa, na kwa kufuata mila na desturi ya Wasukuma mtoto akidaiwa deni hulipwa na baba yake, na kwa kuwa mila hiyo inatumika katika sehemu hii na inakubalika, H ingawa ng'ombe zilizokamatwa ni za baba wa mdaiwa, naona rufaani haina msingi na inakataliwa, na gharama zote ni juu ya .....".

I Sgd). G.B. Kajuna

HAKIMU (W) 22/1/1982

1986 TLR p101

MUSHI J

A Haki ya kuomba rufani katika Mahakama Kuu imeelezwa.

(Sgd). G.B. Kajuna

HAKIMU (W) 29/1/82

B It is against this decision that the objector/appellant is appealing against the District Court decision. Among the grounds of appeal which I consider most relevant are grounds Nos. 1 and 6 which read as follows:-

C 1. Mdai alichukua kwangu ng'ombe 15 bila mimi kuwa na kesi na wala mdai tulikuwa hatudaiani naye.

6. Hakimu alionekana kuingiza mambo ya mila eti kuwa kwa vile ni mtoto wangu mimi ninaweza kurudisha madai yake. Sijui kama ubaguzi huo ulikuwa wa kweli na haki.

D There are two questions to be considered and they are:-

1. Who is the owner of the cattle which were attached in execution of the attachment warrant to settle the decree in which Shipilingi Kazungu/judgment - debtor was a party? E

2. Does a parent of an adult child have any legal obligation to settle his/her child's debts incurred while leading an independent and separate life?

F The answer to the first question is not difficult to get. It is already stated above that the Primary Court Magistrate did not decide the issue. The District Court decision clearly states that the cattle which were attached belonged to the appellant. This conclusion is correct even though the learned District Magistrate did not discuss the evidence. The fact is G that both the appellant and judgment - debtor stated that the cattle belonged to the appellant and there was no other believable evidence to the contrary. Quite correctly therefore the evidence established that the attached cattle belonged to the appellant.

H Regarding the second question although the learned District Magistrate found that the cattle belonged to the appellant, he nevertheless found that the appellant was legally bound to settle the debt of his son in accordance with Sukuma customary law. Although I have reproduced the whole District Court judgment, the relevant portion reads: I

1986 TLR p102

MUSHI J

A "Ushahidi uliotolewa unaonyesha kuwa mdaiwa ni mtoto wa mpingaji na ng'ombe zilizokamatwa ni za baba wa mdaiwa, na kufuata mila na desturi ya Wasukuma - mtoto akidaiwa deni hulipwa na baba yake, na kwa kuwa mila hiyo inatumika katika sehemu hii na inakubalika, ingawa ng'ombe zilizokamatwa ni za baba wa mdaiwa, naona rufani haina msingi ....." B

This is a bold statement with far reaching consequences. It is unfortunate that the learned magistrate did not state the C source and authority of this bold assertion. There is no evidence on record of the existence of such customary law. The courts are to apply the customary laws applicable to a particular community at a particular place but before the court applies the custom it must be proved by evidence that such custom exists and it is practiced by those concerned. In this D case, the appellant has protested right from the Primary Court that he has no legal obligation to settle the debts of his adult son who is leading an independent life. The appellant stated that judgment-debtor had his own homestead with wives and children and that the judgment-debtor was employed and earning his own living. Judgment-debtor confirmed E that he had his own homestead and he was earning money for himself. In his petition of appeal ground No. 6 which I have quoted above, the appellant has challenged the existence for such

custom its truth and fairness. As the learned District Magistrate's judgment was not supported by any evidence nor did it disclose the source of his assertion, the F challenge posed by the appellant cannot be answered from the judgment. There is therefore no evidence at all that a parent is legally obliged to settle the debts of his adult independent son. Even if, it had been established that such custom, ever existed, the answer to the second question would still be in the negative. This is so because to punish a person or to G make him part with his property on account of another adult person whether such adult is a son of the person so punished would be repugnant to the principles of natural justice and contrary to public policy. By public policy I mean H that it is the declared policy of this nation, and indeed it is the practice of any civilized community that every person and more so, every adult should live on his own sweat and should be accountable and responsible for his acts. Fortunately this court has on several occasions dealt with similar points. One of these cases was Mwanza High Court I Miscellaneous Criminal Cause No.22 of 1984. (unreported). In this case I said and I quote from pages 2 and 3:

1986 TLR p103

MUSHI J

A "It is unimaginable that a person can legally be forced to part with his property for an act he has not done but done by another person".

Again on page 3 of the same judgment I said: B

"This is not the first time that this Court has refused to recognize the existence of such law. Among the cases which this Court has considered involving a point of similar nature are:

Meta Tebera v Isakwe Rongoya; [1967] H.C.D. 119: Masero Mwita v Rioba Masero [1968] H.C.D. 199: Mariba Wanyangi v C Romara. [1977] L.R.T. No.7:

Then there is the most recent decision of this Court. This is Mwanza (PC) Civil Appeal No. 88 of 1982 (unreported), D Rashid Neyura v Athuman Mayunga. In this appeal I discussed the principles which in my view make it impossible for this Court to accept the concept of taking away a man's property for a wrong done by someone else. I wish to reiterate what I said by quoting the extract from the case of Gwao Bin Kilimo v Kisunda Bin Ifuti (1938)1 T.L.R.(R) 403 E quoted at page 16 of the judgment:

"It is against our general ideas of justice that a man should suffer or be punished directly either in person or in property for some wrong which he has not done himself, though of course in the nature of things it is often impossible to avoid the infliction of F indirect suffering or loss in such cases".

It is, I think, common knowledge and no doubt, a laudable principle that every grown up person should be personally G held responsible and accountable for his actions.

It is for the above reasons that this appeal must be allowed. The appeal is allowed. Both the District and Primary Court decisions are set aside. It is substituted with an order upholding the objection by the objector/ appellant, and that the H cattle attached in execution of the warrant in which Shipilingi Kazungu was the judgment-debtor should be returned to the appellant/objector.

Appeal allowed. I

1986 TLR p104

A

[zRPz]JOHN KAHAMILA v PASCHAL JONATHAN & HILDA HOSIA 1986 TLR 104 (HC)

Court High Court of Tanzania - Bukoba
Judge Mwalusanya J

B

October 19, 1985.
(PC) CIVIL APPEAL 95 OF 1983
Flynote
Jurisdiction - Adultery - Claim for adultery in Christian marriages -Court of original jurisdiction - Law of Marriage Act, 1971, s.75.

C Family Law - Dissolution of marriage - Long separation of spouses -Whether dissolves marriage - Law of Marriage Act, 1971, s.107.

-Headnote

This was an action for damages for adultery involving the second respondent who had contracted a Christian marriage with the appellant. The action was commenced in the Primary Court. There was also an impression that long separation D of the spouses brings about automatic dissolution of marriage.

Held: (i) Under s.75 of the Law of Marriage Act, 1971, primary courts have no jurisdiction to entertain claims for E adultery where the parties involved contracted a civil marriage or a Christian marriage: the appellant in this case therefore took his claim to the wrong court;

(ii) a marriage may only be dissolved by a court of law and not by long separation of the spouses; until the F marriage is properly dissolved, the second respondent is still the appellant's wife, their separation notwithstanding.

Case Information

Appeal dismissed.

G Case referred to:

1. Pett v Greyhound Racing Association [1969]1 Q.B.125

[zJDz]Judgment

Mwalusanya, J.: This is a second appeal. In both courts below appellant John Kahamila lost. He H was claiming shs. 800/= as damages for adultery from the 1st respondent Paschal s/o Jonathan. If he had sought the services of a lawyer no doubt he would not have been caught wrong footed as it were in that both the suit and the appeals were misconceived. This again underscores the importance of legal services in our society and I am at a loss for I those characters who hold the lawyers in contempt. For example in

A the 17th century England William Shakespeare (1564 - 1616) in Henry VI Part 11 - Scene IV had prayed that:

'The first thing we do, let us kill all the lawyers'.

B And yet another English novelist John Gray (1685 - 1732) in his 'The Beggar's Opera 1 Chap. ... did not spare the lawyers when he said:

'A fox may steal your hens, Sir, If lawyers' hand is fee'd, Sir, He steals your whole estate'.

C

But I think the bitterest criticism was that unleashed by a citizen of England to his 'monarch' Cromwell when he said of lawyers: D

'------ lying lawyers whose heads are full of mischief and their pens dipped in gall and wormwood; their teeth as swords and spears, and their throats open sepulchers, to devour and swallow up the poor and needy from amongst men'.

E And yet another has attempted with sarcasm to define as who is a lawyer. He is Ambrose Bierce in the 'The Devil's Dictionary' by Doubleday & Co. Inc. Delphin Books at p. 118.:

'Lawyer - one skilled in circumvention of the law' F

And as if that was not enough there is a classical joke on lawyers that a typical textbook for every law student has the following chapters:

G Page 1 - 10 (Chap.1) : Libel laws.
Page 11 - 24 Chap.2 : Divorce Laws.
Page 25 - 36 Chap.3: Criminal Laws.
Page 37 - 500 Chap. 4 : Loopholes

H But I am satisfied that the picture of a lawyer is wrong. Those who think that way are misguided. Lawyers play a very useful role in society. We read in Boswell: 'Life of Johnson' Vol. 5 pp. 28 - 29; also quoted in Soonavala: 'Advocacy' 2nd Edn. at p. 921:

I 'As it rarely happens that a man is fit to plead his own cause,

1986 TLR p106

MUSHI J

A lawyers are a class of the community, who, by study and experience, have acquired the art and power of arranging evidence, and of applying to the points at issue that the law has to settle. A lawyer is to do for his client all his client might fairly do for himself, if he could. If by superiority of attention, of knowledge, of skill and a better method of communication, he has the advantage to which B he is entitled'.

And we have an incisive commentary from that eminent English lawyer Lord Denning M.R. in Pett v Greyhound C Racing Association Ltd: [1969] 1 Q) 1 Q.B.125 at p.13:

'It is not every man who has the ability to defend himself on his own. He cannot bring out the points in his own favour or the weakness in the other side. He may be tongue - tied or nervous, confused or wanting in intelligence. He cannot examine or cross D - examine witnesses. We see it every day. A magistrate says to a man: 'You can ask any question you like'; whereupon the man immediately starts to make a speech. If justice is to be, he ought to have the help of someone to speak for him. And who better E than a lawyer who has been trained for the task? I should have thought, therefore, that when a man's reputation or livelihood is at stake, he not only has a right to speak by his own mouth. He also has a right to speak by counsel'.

F I associate myself with these views that lawyers play a very useful part in society. And as I said earlier if appellant in this appeal had sought lawyer's advice, this suit would not have been filed in the first place.

G This was a suit for a claim of damages for adultery. Appellant had contracted a Christian marriage on 12/8/1973 at Kashasha Lutheran Church in Kagera Region. But under s.75 of the Law of Marriage Act No. 5 of 1971 a Primary Court shall have jurisdiction to entertain a suit for a claim of damages for adultery, where the parties were married in H accordance with the customary law or Islamic law. If the parties contracted a civil marriage or Christian marriage then they have to file a suit for claim of damages for adultery at the District Court. So it is obvious in this case that appellant filed the suit at the wrong forum. For that reason the appeal fails.

I There is another misapprehension which I must set straight for the benefit of the parties. The trial court and the respondents

1986 TLR p107

A harbour the impression that a marriage may be dissolved by long separation of the spouses. That is wrong. A marriage may only be dissolved by a court of law - s.107 of the Law of Marriage Act No. 5/1971. As the position stands in this case the 2nd respondent is still the wife of the appellant until their marriage is dissolved by a court of law. If B she persists to cohabit with the 1st respondent without divorcing the former husband, 1st respondent will be definitely liable in damages for adultery.

Be that as it may, for the reasons I have attempted to set out above, this appeal is dismissed with costs C

Appeal dismissed.

D

[zRPz]HAJI ASSOCIATES COMPANY (T) LTD. AND ANOTHER v JOHN MLUNDWA 1986 TLR 107 (HC)

Court High Court of Tanzania - Mwanza

Judge Mwalusanya J

E

6 July, 1987.

CIVIL CASE 13 OF 1985

Flynote

Tort- Damages - Assessment of - Quantum

-Headnote

F A defamatory letter by the defendant concerning the plaintiffs resulted in the latter losing considerable business. In a suit for damages the plaintiffs claimed shs.1,500,000/= as general damages.

G Held: (i) General damages are compensatory in nature as they are intended to take care of the plaintiffs loss of reputation as well as to act as a solatium for mental pain and suffering;

(ii) a compensation of Shs.1,500,000/= is a reasonable one in the circumstances of this case.

Case Information

H Judgment for the plaintiffs.

Cases referred to:

1. Haji Associates Co (T) Ltd. v Registrar of Companies (Mwanza, Misc. Civil Appl 9 of 1985). I
2. Bowman v Secular Society [1917] A.C. 406.

1986 TLR p108

MWALUSANYA J

A 3. Chimala Stores v Zambia-Tanzania Road Services Ltd. [1970] H.C.D. n.232.
4. Jonathan v Athumani Khalfan [1980] T.L.R. 175
5. Novati s/o Joseph v Sebastian Muzo [1978] L.R.T. n.14.

[zJDz]Judgment

B Mwalusanya, J.: This is a suit for damages for defamation concerning a libel. The two plaintiffs namely Haji Associates Company (T) Ltd. (1st plaintiff) and Haji s/o Mugishagwe (2nd plaintiff) are claiming general damages in the sum of Shs.1,500,000/=.

C The preliminary point raised by the defendants in their Written Statement of Defence is that the incorporation of the 1st plaintiff is null and void because the Memorandum and Articles of Association of the company were signed inter alia by two minors; and because the incorporation was obtained by false pretenses and/or fraud.

D I don't agree that the incorporation is null and void. I stick to what I held in the case of Haji Associates Co. (T) Ltd. v Registrar of Companies Mwanza Misc. Civil Application No. 9 of 1985 (unreported) that once a certificate has been granted no one can question the regularity of incorporation. That is the import of s. 16 of the Companies Ordinance, E Cap. 212. I suggested in that case following the decision of the House of Lords in Powman v Secular Society [1917] A.C. 406 at p. 439 that the only way to challenge the incorporation of a company is by way of prerogative orders, e.g., certiorari, mandamus and prohibition. Therefore the preliminary point fails. F

Now what are the issues to be proved to establish the tort of defamation concerning libel? These are:-

1. First there should be communication to third parties.

G 2. Does the publication or communication refer to the 1st plaintiff as well?

3. Whether the statement or publication is calculated to injure the reputation of another by exposing him to hatred, contempt or ridicule.

H 4. If the communication was made while on qualified privilege then malice must be proved.

5. Is the defence of justification available to the defendants?
6. Is the defence of fair comment available to the defendants?

I The first issue as regards communication to third parties I find it uncontroverted. The letter which defendants wrote is Exh.

A B2 in Court and clearly indicates that it was communicated to nine different people or organizations. So I answer the first question in the affirmative.

Concerning the second issue I also answer it in the affirmative as the letter exh. B 2 is self-explanatory. The heading of that letter reads: "Re: M/S Haji Associates Company (T) Ltd." and therefore it cannot be gainsaid that the 1st plaintiff B was not the subject matter of that letter.

On the third issue I also answer in favour of the plaintiffs. The publication reads:

C It appears that Haji Mugishagwe has presented himself as the only qualified Architect in Mwanza and has a successful 'practice' in Mwanza which is illegal. He has even swindled clients by charging them up to 1000% of legal fees. Haji's claim is for sh.588,060/40 which should also come to sh.40,000/= has reached me by coincidence from my client who has disputed his D claim.

I agree with plaintiffs' counsel Mr. Kahangwa that those words in their natural and ordinary meaning import that the E plaintiffs are operating an illegal practice, they are swindlers and overcharging their clients. And obviously that is a very bad reputation of the company and its Managing Director. The publication obviously tended to lower the plaintiffs in the estimation of right-thinking members of society generally. F

We go to the fourth issue. Was the publication made under qualified privilege? In my view only the communication to the Registrar of Board of Architects, Quantity Surveyors & Building Contractors was privileged because there was reciprocal interest. I agree that the defendant as an architect and a registered member of the National Board of G Architects, Quantity Surveyors and Building Contractors was duty bound and had an interest in informing the Board or making it aware of any practices that may not appear acceptable practices and procedures of the profession and in particular as in this matter where the issue of calculation of fees is concerned. However that qualified privilege was H destroyed by malice as he was reckless in his publication. By publication of a false statement like - that the plaintiffs were operating an illegal practice obviously destroyed the qualified privilege - see Chimala Stores v Zambia - Tanzania I Road services Ltd [1970] H.C.D. n. 232. The plaintiffs are in fact doing their business legally. They

A are registered and have their business licence alright. And again the qualified privilege is destroyed because the communication was made to persons other than the Board. That communication to unconcerned people like Town Director Bukoba or Municipal Director Mwanza was not privileged at all - see the case of Jonathan v Athuman Khalfan [1980] T.L.R. 175 by Lugakingira J. That sufficiently answers issue number four. B

Now issue number five says, is the defence of justification available to the defendants? I don't think so. As this Court stated in the case of Novati s/o Joseph v Sebastian Muzo [1978] L.R.T. n. 14 (Mfalila J.) for the defence to succeed C the defendant must prove that the allegations were true, made in public interest and not motivated by malice. As I have mentioned above it is not

true that the plaintiffs are operating an illegal practices; they are operating legally. Therefore the defence of justification equally fails.

D Finally is the defence of fair comment available to the defendants? For the defence of fair comment to succeed it should have been made in good faith and without malice upon a matter of public interest namely the professional conduct of the plaintiffs. As I have said above the defendant in this case was motivated by malice because he was reckless in his E language. It was not fair comment to state that the plaintiffs operate an illegal business a fact which is not true. I accordingly reject that defence.

In the event, I find the defendants liable. Now to what relief are the plaintiffs entitled to? Libel is actionable per se in that F you don't have to prove damages. And general damages are compensatory in nature; they are intended to take care of the plaintiffs loss of reputation as well as to act as a solatium for mental pain and suffering. The plaintiff's have stated that their otherwise successful business was substantially affected by that defamation. Many potential clients began to decline G to offer them business, e.g., Kauma as evidenced in their letter Exh. E. And the interesting thing is that the defamatory letter was addressed mostly to the plaintiffs' clients. The other effect of the letter was that Mwanza Municipal Council refused them a business licence for two months (see Exh. C and Exh. D) until it was clarified that the plaintiffs were in fact H operating legally. It is said the turnover per year of the 1st plaintiffs' company is about sh. 60,000,000/=. The defendants themselves have conceded in their defamatory letter that plaintiffs were conducting a 'successful practice' though an illegal one. For the reasons given, I find that a compensation of sh.1,500,000/= is a I

A reasonable one. I accordingly enter judgment for the plaintiffs as prayed plus costs of the suit.

Order accordingly.

1986 TLR p111

B

[zRPz]JOSHUA SHIJA KISENDI v PAULO KATOTO AND ANOTHER 1986 TLR 111 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

C

26 June, 1987
CIVIL CASE 16 OF 1977
Flynote

D Tort - Trespass - Trespass over land held under a right of occupancy - Whether Trespass committed before grant of right of occupancy by one who held the land under a deemed right of occupancy or as licencee is actionable.

Headnote

E The plaintiff was on 1/7/1978 granted a right of occupancy over a plot which was occupied by the defendants either as licencees or under a deemed right of occupancy. In 1977 he sued the defendants for trespass which he claimed started in July, 1975.

F Held: Since prior to 1/7/1978 the defendants were in lawful occupation of the said plot either as licencees or with a deemed right of occupancy when the suit was filed in 1977 there was no cause of action

Case Information

G Judgment for defendants

Case referred to:

1. Tyrringham's Case [1584] 4 Rep. 4b., 38b.
2. Hemmings v Stoke Poges Golf Club [1920] 1 K.B. 720

H Rugarabamu, for the plaintiff

[zJDz]Judgment

Mwalusanya, J.: The plaintiff Joshua Shija Kisendi is claiming damages against the defendant Paulo Katoto Building Contractors for trespass on his land. It is alleged that the defendants trespassed on his land situated on I plot No. 195 A Block

1986 TLR p112

MWALUSANYA J

A U, Rwagasore Street in Mwanza Municipality. He claims shs.25,000/= as general damages for the trespass. And he also claims mesne profits of shs.1,000/= p.m. from the day the trespass started in July 1975 to date, and the same amounts to shs. 233,000/=. The mesne profits arise because it is alleged the plaintiff was deprived opportunity to use B and develop his plot of land when defendant occupied it. The trial of this case proceeded in the absence of the defendants as is allowed under Order 17 rule 3 of the Civil Procedure Code Act No. 49 of 1966 because the defendants declined to proceed with the case when they were not ready. Anyway in the written statement of defence, the defendants C assert that the plot in dispute is their property which they bought at a public auction in Mwanza on 5/11/1975. And they assert that they have the relevant receipts to establish the sale to them of the plot.

In his testimony in court the plaintiff produced a certificate of right of occupancy (Exh.A) to indicate that he is the lawful D owner of the plot in dispute. However on perusal of the said certificate I notice that the grant of right of occupancy of 99 years started to run from 1/7/1978. And the plaintiff conceded at the trial that defendant had bought a hut and some E timber lying on that plot on 5/11/1975, and that the purchase was at a public auction from the former owners the Geita General Store.

Now assuming that the facts as narrated by the plaintiff are correct, was there any trespass on 29/8/1977 when this suit F was filed? Certainly not. This is because the grant of right of occupancy to the plaintiff started to run on 1/7/1978. Therefore prior to 1/7/1978 the defendants were in lawful occupation of the said plot either as licencees or with a deemed right of occupancy. Therefore it is crystal clear that when the suit was filed there was no cause of action. On this ground alone, this suit must fail.

G Can I uplift the cause of action to start to run on 1/7/1978? Certainly not, because I will be amending the plaint contrary to the view of the plaintiff himself. I am not allowed in law to amend the plaint contrary to the wishes of the plaintiff himself. The plaint as it stands cannot prevail nor succeed.

H Now it is not disputed that from 1/7/1978 the plaintiff became the legal owner of the plot in dispute, the question arises, did the defendant become a trespasser thereon? Certainly not. The land office had bungled the whole thing. It was wrong for the land office to allocate that piece of land to the plaintiff without taking the appropriate legal steps to I evict the occupier who was a licencee and not a trespasser. They had an obligation to revoke the licence first.

1986 TLR p113

MWALUSANYA J

A A person unlawfully using and occupying public land may be evicted at the instance of the land officer acting on behalf of the President in whom the control of public lands is vested. Prof. R.W. James in his book Land Tenure and Policy in Tanzania (1971) E.A.L.B. at pp-102-103 tells us that entry on the land by the Land Officer may be made peaceably or B by commencing a civil action for possession. The practice of the land officers is to serve a notice upon the unlawful occupier requiring him to quit and deliver up vacant possession of the public land on or before a stated date. If the notice is ignored the officer then files a plaint in the R.M.'s Court where the land is situated asking for (a) a declaration that the C defendant is in unlawful occupation of the land and (b) an order for him to surrender the land to the government within such period and upon such terms as the court shall deem fit as per s.23(1) of the Land Ordinance Cap. 113. The proof that his occupation is lawful rests upon the defendant, the averment that land is public land being sufficient proof of that D fact by virtue of s.23(3) of the Land Ordinance. The Court may make an order requiring the occupier to vacate the public land and it may allow him to remove buildings and other items on the said land. A squatter who remains in occupation of public land after the date when he was ordered to surrender the land or who having surrendered the same, E renews his unlawful occupation thereof, is guilty of an offence and is liable to a fine not exceeding shs.2,000/= and in the case of continuing offence an additional fine not exceeding shs.5,000/= for every day during which he continues to occupy the land - see s.23(2) of the Land Ordinance. However very often the Land Office thinks that that procedure is F slow and cumbersome and so they do not utilize it. That is wrong and it is exactly the same mistake they committed here.

It is the view of Prof. R.W. James who is an authority on land law in Tanzania that such an occupier after the land is G allocated to another person is more or less not a trespasser. He says at p.103 of his book cited above:

> It is arguable that squatters have a 'reasonable excuse' for the unlawful use and occupation of public lands. Moreover the Land Ordinance is not entirely unambiguous on the legality or illegality of African's rights on crown lands. It is also doubtful, to say the least, whether squatters can be said to enter upon enclosed lands of another, when they were the former owners of the land and have effected some improvements under a claim of ownership. I

1986 TLR p114

MWALUSANYA J

A And Winfield on Law of Tort (1963) 7th Ed. by J.A. Jolowicz and T. Ellis Lewis (Sweet and Maxwell) at p. 378 holds the same view that in such circumstances the defendant was a licencee and that it is only after revocation of the licence that a licencee becomes a trespasser. I am in agreement with that view and I adopt it. So it is fallacious to hold B the view that defendant was an outright trespasser when the licence was not revoked by the land office.

Now suppose it is accepted that defendant was a trespasser, is the plaintiff entitled to such colossal sums claimed as damages? Certainly not, notwithstanding the fact that the tort of trespass is actionable per se and therefore there is no C need to prove the damage done, such a huge sum of sh.25,000/= as general damages would only be awarded in the clearest and most flagrant cases of trespass. That was not the case here. So if the plaintiff was successful I would have awarded only a nominal sum of sh.2,500/= as general damages. D

The claim of mesne profits amounting to sh.233,000/= is equally misconceived. It is true that the owner of land is entitled to damages for having been deprived possession and opportunity to develop his land. But at the same time I am of the view that the owner of land has an obligation to mitigate his loss. The owner of land has the right to remove the things on E his land and also the right of entry on that land. The right to remove the things on ones land is known as 'distress damage feasant'. He has the right to seize and distrain the things on his land and he keeps them as security for the F damage done to his land but he is not entitled to sell them - see the Tyrringham's Case (1584) 4 Rep. 4b., 38b; see also Winfield on Law of Tort at p.383 (supra). And right of re-entry is recognised by law. The person entitled to possession of land can enter or re-enter the premises though the law requires him to do so in a peaceable manner, G otherwise he commits a crime punishable by imprisonment. But whatever his criminal liability may be, he is not civilly liable if he uses no more force than is necessary - see the English case of Hemmings v Stoke Poges Golf Club [1920] 1 K.B. 720 which I adopt. So in this case at hand, if the plaintiff had distrained the goods on his land early enough and H entered on his land, such a huge claim of mesne profits would not have arisen. And so even if the plaintiff had succeeded in his claim I would have awarded him only a token sum of sh.2,500/= as mesne profits.

In the event the suit fails and I enter judgment for the defendant with costs. I

Order accordingly.

1986 TLR p115

A

[zRPz]M/S MUSILANGA ENGINEERING v P.F. NYAKUTONYA NYAMGESERA AND ANOTHER 1986 TLR 115 (HC)

Court High Court of TAnzania - Mwanza

Judge Mwalusanya J

B

16 June, 1987

CIVIL CASE 62 OF 1983

Flynote

Contract - Assignment of a debt under the doctrine of novation.

-Headnote

Musoma Foodstuff Trading Co., owned by the sons of the first defendant, were indebted to the plaintiffs for timber C supplied to the company. The defendants by a letter undertook to pay the plaintiff the company's debt by supplying them 720 bags of cement. Of this amount the defendants defaulted to supply 300 bags of cement.

D Held: (i) By virtue of the letter there was created a new contract between the plaintiff and the defendant instead of the original contract between the plaintiff and Musoma Foodstuffs Trading Co.

(ii) the doctrine of novation recognizes that one party to a contract can release the other and substitute a third person who then undertakes to perform the released person's obligations. E

Case Information

Judgment for the plaintiff

Case referred to

1. Settlement Funds Trustees v Nurani [1970] E.A. 562 (C.A.) F

[zJDz]Judgment

Mwalusanya, J.: The plaintiff is claiming a sum of sh.42,000/= from the defendant being the value of 300 bags of cement which defendant defaulted to deliver under a contract between them. G

It is common ground that the defendants by their letter dated 1st June 1981 which is Exh. A in Court, agreed to supply 720 bags of cement to the plaintiff without any further payment from the said plaintiff. The plaintiff testified that the supply of cement was without payment because he had already given some timber to the said defendant company. However the H defendant stated that he had just undertaken to pay the debt of his sons who own the Musoma Foodstuffs Trading Co. which owed the plaintiff for the timber he had supplied them. The defendant denied that the timber had been supplied to him. I

Whatever the case, it is obvious that the defendant was in

A breach of the contract for the debt that was assigned to him under the doctrine of novation. This doctrine recognises that one party to a contract can release the other and substitute a third person who then undertakes to perform the released person's obligations. Thus by agreement, a new contract replaces the original contract. That doctrine is recognised in our country and it is under s. 62 of the Tanzania Contract Act. Cap. 433, which reads: B

If the parties to a contract agree to substitute a new contract for it or to rescind or alter it, the original contract need not be performed. C

That is exactly what happened here. By virtue of the letter Exh. A there was created a new contract between the plaintiff and defendant instead of the original contract between the plaintiff and Musoma Foodstuffs Trading Co. Therefore as to D what transpired earlier

between those two old contracting parties is irrelevant here. We are only concerned with the new contract. The doctrine of novation was a subject matter of discussion and approval by the East African Court of E Appeal in Settlement Funds Trustees v Nurani: [1970] E.A. 663 (C.A.) whereof it was held to be a sound principle of law, though it was found in that case not be applicable as no new contract had been substituted. And a distinguished legal writer Prof. R.W. Hodgin in his book Law of Contract in East Africa (1975) E.A.L.B. at pp. 176 - 177 states that the doctrine of novation is applicable in East Africa in the circumstances just discussed. I agree. F Therefore even if there was originally no privity of contract between plaintiff and defendant, yet I am satisfied that by the doctrine of novation a new contract between them was created on 1/6/1981. The defendant is bound by that contract G If those who assigned the debt to him have defaulted on their part, then defendant can sue them. But that is not the concern of the plaintiff.

In the event I enter judgment for the plaintiff as prayed.

Order accordingly. H

1986 TLR p117

A

[zRPz]CHACHA MALIMA v MWITA KITOGO 1986 TLR 117 (HC)

Court High Court of Tanzania - Mwanza

Judge Katiti J

(PC) CIVIL APPEAL 87 OF 1985

Flynote

B Customary Law - Legitimization of children - Legitimization by a man not mentioned by the mother's child and not natural father of the child - Whether possible - Customary Law (Declaration) Order 1963, G.N. 279/1963, rr. 181 A and B.

-Headnote

C The appellant married the respondent's daughter when the said daughter had a suckling female baby. He claimed that he paid the respondent cattle as bride price and for legitimization of the child. When, after a few years, the marriage relationship grew sour the marriage broke. The appellant then sued the respondent claiming the female child on the D ground that he had already legitimized her. There was no evidence to show either that the mother of the child had named the appellant as the father or that the appellant was the natural father of the child.

E Held: (i) The appellant was never the father of the child nor did he try to assert himself in that direction; therefore he had no competence to legitimise the child;

(ii) to allow an extension of the application of rules 181 A and B of the Customary Law (Declaration) Order, 1963 and allow a man to acquire children on mere payment of cattle or cash would introduce child purchase which would F be repugnant to our system and jurisprudence.

Case Information

G Appeal dismissed.

Case referred to:

1. Hamis Ungaunga v Omari Said [1973] L.R.T.n. 37

[zJDz]Judgment

Katiti, J.:In Musoma Urban Primary Court, Chacha Malima the appellant herein sued Mwita Kitogo hence the H respondent, claiming a female child, from the latter party, founding the claim on the alleged legitimisation of the said child, by payment of eight heads of cattle, upon marrying the child's mother. The Primary Court was unanimously of the view that as the child was never fathered by the appellant the question of legitimatization did not arise. They instead ordered I that the appellant be compensated

1986 TLR p118

KATITI J

A sh.8000/=. The respondent successfully appealed to the District Court, which allowed the appeal on two main grounds, namely, (1) that while the appellant had in law been entitled to legitimatize the child by payment of cattle, his demand of, and being refunded the same derogated from his claim, and therefore he ceased to have any rights over the B child, and (2) that, as the appellant deliberately and voluntarily entered into a marriage relationship with the respondent's daughter, who at the material time had a suckling baby, he assumed the responsibility of maintaining the child, the liability for which could not be attached to the respondent in the absence of evidence, or agreement for so doing. The District C Court disallowed the compensation.

The appellant has appealed to this Court, against such a verdict. The facts of the case, fall within a narrow compass. The appellant Chacha Malima amorously fell into the embrace of the respondent's daughter, who already had a baby D daughter, by some other man, and decided to marry her. The respondent's daughter had a suckling female baby, and with such full knowledge, the appellant married the respondents daughter who because of the extreme infancy of the child, had to go with the baby to matrimonially live with the appellant. It was claimed by the appellant, that what was E agreed upon between him and the respondent, was that the appellant pay twelve heads of cattle as bride price, and eight heads of cattle as child legitimisation payment, the latter part of evidence being denied by the respondent. It is all the same undisputed that, the appellant only paid eighteen heads of cattle. The wear and tear and corrugations of marriage F having intruded into the marriage irreconcilably, the appellant and the respondent's daughter parted and were divorced. The appellant was refunded all the bride price he had paid, but he still wanted the child founding his claim on the claimed legitimization of the said child. G

This appeal does in my view raise two issues that serve to dispose of the appeal. They are (1), whether a man, not a father, nor named as a father, has competence to legitimate an illegitimate child, and acquire legal paternity. And (2), H whether the Primary Court was entitled to award compensation for the upbringing of the child for three years (1981 - 1984) an aspect that was not pleaded, and disallowed by the District Court, but still being harped upon in this appeal, by the

appellant. The first issue, it seems to me seeks the application of the provisions of Rule 181 A and B, of the I Customary Law (Declaration) Order 1963, G.N. 279/1963.

1986 TLR p119

KATITI J

A According to the provisions of Rule 181 A and B, of the Customary Law (Declaration) Order 1963, there are two ways, either of which may serve to legitimate an illegitimate child, but each being tied to one constant common denominator condition precedent, and that is, it is the father of the child, whether named by the mother, or is acceptably B the natural father, who may legitimate the illegal child - (1) by either marrying the mother, or (2), without marrying the child's mother, by paying Shs.100/=, which may also be in kind, to the child's mother's father; - the condition precedent, in either way, being that he must be the father of the child, either, as named by the mother, or as commonly accepted as the natural father. I seek support on one of the ways, under Rule 181 B of the Customary Law (Declaration) order 1963 C from the case of Hamis Ungaunga v Omari Said [1973] L.R.T. No. 37, which held that, it was the father of the child born out of wedlock, who could legitimise the child by payment of Shs.100/=, if he does not marry the mother. In this case, the appellant was never the father of the child, nor, did he try to assert himself in that direction, and had D therefore no competence to legitimise the said child, and to allow an extension of this rule, to allow any man to acquire children, on just payment of cattle or cash is to introduce child purchase which would be repugnant to our system and E jurisprudence. I would therefore and hereby, dismiss the appellant's claim on this aspect.

The second issue, is about the compensation aspect for upbringing the child. This was unpleaded, but conceived by the Primary Court and disallowed by the District Court on appeal. With due respect to the Primary Court, the compensation issue was never pleaded, nor otherwise demanded in the course of adducing evidence by the appellant. Thus not only F was this offensive of the rules of pleadings - see rule 15 of the Primary Courts Civil Procedure Rules, and not only did the element of surprise, deprive the respondent the right or reply thereto, but the figure was also arbitrarily fixed, in favour of G the appellant. The trial Court, should not have gone out of its way to consider what was not pleaded.

But, even if compensation had been pleaded, and was an issue, it seems to me, the same would raise demanding H questions. First, it seems to me that where a man decides and marries, a woman who is suckling an illegitimate baby by another man, and takes both of them, because essentially out of love and affection for the mother, he has thereby voluntarily assumed the responsibility, and when the marriage is shattered beyond repair and the child is taken away I , there cannot be the basis for liability of the father-in-law, in the

1986 TLR p120

A absence of customary law, or contract to that effect, and such we do not have. Second, for quite a while, the baby is suckling its mothers' milk and how to quantify that milk and computerise the same into cash and apportion the same into refundable labour to the appellant is very difficult. Third, the child's mother's work, care and, contribution, etc, for we B know rural women are the chief producers of food and cash crops, and chief carers of children, and it

would be, difficult to quantify into monetary language, and show how great or greater was the contribution by the appellant. Unfortunately during the heat of love such consequential details are never worked out. From the above, it seems to me, compensation C under the circumstances, must have been pleaded, and strictly proved, and basis for liability established. In this case it was not, and the District Court was right to disallow it, and it is by this Court equally disallowed. The appeal is hereby dismissed with costs.

D Appeal dismissed

1986 TLR p120

E

[zRPz]LEONANCE MUTALINDWA v MARIADINA EDWARD 1986 TLR 120 (HC)

Court High Court of Tanzania - Mwanza

Judge Katiti J

10 August, 1987.

(PC) CIVIL APPEAL 81 OF 1984 F

Flynote

Customary Law - Clan shamba - Sale of - Sale by female - Sale sanctioned by clan members - Whether such sale may be G nullified - Para 20 of the Customary Law Declaration Order, G.N. 536.

Customary law - Limitation period - Time within which disposed of customary land may be redeemed.

Limitation - Period of - Time within which disposed of customary land may be redeemed.

-Headnote

H A female who inherited her deceased father's shamba disposed of it with the consent of clan members. Seven years after such disposition a clan member sought to redeem it arguing that a female is not legally competent to dispose of clan land. The purchaser of the land contended that the suit was time-barred, the time of limitation being three months from I the period of knowledge of such sale.

1986 TLR p121

KATITI J

A Held: (i) A clan may legally and competently allow and sanction its female clanmates to sell clan property;

(ii) the shamba was legally and competently sold;

(iii) the limitation period for an action for redemption or nullification of sale of clan land is three months.

Case Information

B Appeal dismissed.

Cases referred to:

C 1. Leopold Bakubezi v Gordian Ikwabu [1953] App. No. 12/1953 (unreported).

2. Shumbusho v Nyamwiza d/o Magayane [1954)]App. no. 21/1954, Central Court of Appeal.

3. Pancras Elias v Gratian Pancras [1968] H.C.D. 411.

4. Grasiani Kaberu Murefu and Farijala Katemara v Bushaija

D 5. Mzee Madrisa v Rwanturaki Mulagirwa [1977] L.R.T. no. 57.

6. Evarister Martin v Apolinary Eustad and Tefunwa Tibishubwamu [1968] H.C.D. 412.

7. Abel Rwebogora v Raphael Mukaja [1970] H.C.D. 100.

E Rweyemamu, for the respondent

[zJDz]Judgment

Katiti, J.:Bi Mariadina Sindano Edward, the lone child to her father, and belonging to the "ABANU" clan, inherited her deceased father's shamba, upon her father's death; to which he succumbed in 1965. She unfortunately also lost her mother, and subsequently fell seriously sick, and devoid of any kind of assistance, from any quarter including F her clanmates, she sought her clanmates to buy her shamba, in vain, each saying, he or she, had no money. She finally came upon Mohamed Abdallah, the 2nd respondent in the lower Courts, to whom she offered, and who accepted to buy G her shamba, with the sanction of clan-members, at a mutually agreed amount of Shs.48,000/=, (forty eight thousand only).

The document of sale dated 20/1/77 that was among others signed by six clan members, inter alia, reads as follows:- H

Tumekubaliana sote wawili pamoja na wanaukoo kuweka sahihi zetu, hapa chini, mbele ya mashahidi wetu wanaohusika. I

Mashahidi, hawa wote ambao wameweka sahihi zao katika

1986 TLR p122

KATITI J

A hati hii ya mauziano hapa chini, ndio wale, niliokabidhiwa na baba yangu marehemu, na ndio, wenye uwezo wowote ule kulalamikia, shamba hili na nyumba kama ningeuza bila taarifa yeyote, au bila kuniruhusu, na kunikubalia.

B Sahihi ya Dina Sindano

Sahihi ya Mohamed Abdallah(mnunuzi).

Mashahidi:

C (1) Teonest Butakili (D.W.3)

(2) Tiriphone Alex

(3) Gilioni William

(4) Serapioni William

(5) Joakimu Ale

D (6) Ladka

(7) Bonifaci Leonard

(8) Phill Mwiiba

On 7/3/83, vide Muhutwe Primary Court civil case No. 13/1983, the appellant Leonce Mutalindwa, filed this case E against, Bi. Mariadina Sindano Edward, and Mohamed Abdallah,

then first and second respondents respectively, complaining that the former sold and the latter bought clan land without clan sanction, arguing further here and before this F Court that Bi. Mariadina Sindano Edward had no right to sell clan land, but to only enjoy the usufruct of the same in her life time.

The Primary Court unanimously held against the appellant. What is particularly intriguing, are the assessors opinions, which I quote hereunder for posterity to easily appreciate. The first assessor Simon Chememe, inter alia, but importantly said:- G

Alipofariki marehemu Mr. Edward Sindano 1965, P.W.1, na P.W. 3 hawakuweza kushughulikia ugonjwa wa D.W.1, walimwacha na alishughulikiwa na Ndugu wanaukoo (wengine), waliojirani na shamba hili. H

Jambo moja la kujiuliza ni je, ni kweli huyu D.W. 1 ugonjwa wake, unaeleweka kwa wanaukoo wake wa "ABANU"? Jibu linajibiwa, na barua kielelezo "A", iliyotolewa na D.W.2, kuwekewa na wanaukoo (5) watano, kumwidhinisha D.W. 1 auze shamba hili kwa I shida ya ugonjwa ....

1986 TLR p123

KATITI J

A Hivyo mimi naona muda wa miaka saba tangu D.W.2 anunue shamba hili, mdai mwenyewe aliweza kuelewa dhahiri, na fedha zote Shs.73,000/=, alizotumia D.W.2, zinaweza kuleteleza, shida ya maendeleo, hivyo ni yeye mdai aliyeghahili, na kupoteza shamba hili. Hivyo mdai D.W.1 ameshindwa na wadaiwa wote wawili wameshinda, shamba liendelee kuwa ni mali ya mdaiwa B No. 2.

The second assessor Bi. Rugenia's opinion was concurrently on the same line. The apellant's appeal to the District Court, did not meet any fortune, as the case, or appeal, was dismissed on the grounds (1) that the appellant's action, C after seven years had been time barred, and (2) that the clan had the competence to sanction the sale and hence the appeal to this Court.

On appeal before this Court, the respondent was represented by a Bukoba based advocate Mr. Rweyemamu, who tried D to pound home and support the lower Court's verdicts based first on time limitation. Mr. Rweyemamu further submitted that the female disability in disposing of clan land is overriden and yields to the ultimate authority of the clan in which clan land title is ultimately vested, to even authorize a female to sell clan land, if there are compelling reasons. The E appellant on the other hand was not sloth to repeat the biblical time traded biased concept hence crystallised into, para 20 of the Customary Law Declaration G.N. 536 of 20/4/1963, that the 1st respondent, a female was not competent to dispose of clan land by sale. I have, on my part enjoined as I am, considered the issues in this case. Discernibly and with F the assistance of the Primary Court assessors' opinion, I am verily satisfied, that the issues involved are (1) whether a female has legal competence to dispose of clan-shamba, (2) whether the clan may legally and competently sanction a female inheritor to dispose of the clan shamba so inherited, and (3) whether the appellant was time barred. G

The first issue, whether a female has legal competence to dispose of clan land, is to both professional and lay members of this zone, susceptible to easy answer, an answer that is particularly attractive, covetously and jealously guarded by H chauvinistic males, but the envy

of females from Kagera Region. The answer as expected is that para 20 of the Customary Law Declaration G.N. 536, does operate to deprive the first respondent a female the power to sell clan land. The first issue is therefore answered positively. But I would like to add, may be in passing, that at any one time, we may I have bad as well as good law, and I venture to say, without
1986 TLR p124
KATITI J
A qualms, that this piece of customary law is bad, it discriminates against women, encourages expansionist greed on the part of males against female relatives, and deprives females, important resources for self-assistance, when as in this case, they are in serious trouble, while like wild birds of prey, men, greedily look on, or however, either for the woman to B expire, or die, or abandon that shamba, - in this case, this ugly position is with clarity put by the appellant's witness, P.W.4 thus:

Hasa kusudi letu kubwa mlitaka D.W.2 awarudishie shamba hili, bila ninyi kumrudishia fedha Czake. C

So much for the ugly aspects, but what is encouraging is that the grave for the same is being dug, for the contemptuous burial of the same for the sake of equality, when the Fifth Constitutional Amendment 1984, takes its rightful place, in D 1988.

The second issue is, whether the clan members may legally and competently sanction a female shamba inheriter, to dispose of, or sell the clan shamba. In the perspective of things, it seems to me, that under customary law, obtaining in E the area the case hails from, the parlance clan shamba, should mean, that title in clan land in that Customary Law sense, is generally vested in the clan. Since such title is so vested, the said clan may sanction, individual clan mates, to dispose of the clan-land, or even for good cause, refuse to so sanction. It has never been contentiously debated, that, a female is not as much a member of any clan, as any male. And if the ultimate authority for sanctioning sale of clan property, is F vested in the clan, and I am sure it is, it does not seem to me, that, the exercise of such power, is subject to any sex qualification - discriminating against women. For good cause, such sanction will or should ordinarily be given to males, as well as females. I would in the circumstances answer the issue, that, since the clan has the title vested in it, and can G sanction sale, of clan property, such sanction can be given to both male and females. In this case, the clan as Exhibit A, shows and as the assessors' opined, sanctioned for good reasons, the first respondent, to sell the clan shamba. As the appellant alone does not constitute his clan, his objection cannot override the clan as a whole. It is my view, that a clan H may legally and competently allow and sanction its female clanmates to sell clan property, and in this case it did, and I cannot impute illegality, or absence of jurisdiction thereto. It is my confident view, that the shamba was legally and I competently sold, there is no question of
1986 TLR p125
KATITI J
A sex discrimination, nor is it judicious to let a single ill-motivated person with a get it free mentality to override the majority. As it was held in the case of Leopold Bakubezi v Gordian Ikwabu (1953) App. No. 12/1953, (unreported), Central Court of Appeal Digest No. 58, a woman

lawfully in possession of clan land shamba, as was the respondent in B this case, subject to normal conditions governing such sales, like clan authority is entitled to sell clan land. I would and hereby answer the 2nd issue positively, and the appellant cannot be heard seeking to over-ride clan authority.

Casting nets wider, and without prejudice to the conclusions above, we have the third issue of limitation. It is common C ground that while the shamba was sold in January 1977, and while as per the evidence of P.W.4, three years thereafter, reconciliation between the appellant and the buyer in respect of the said shamba failed the appellant filed an action resultant in this appeal, seven years later, when admittedly the buyer had effected improvement worth Shs.73,000/=. As D aforesaid, the question is whether without prejudice to the conclusion that the clan was competent to sanction the sale, and so did rightly the appellant was otherwise time-barred. The issue of time limitation within which to nullify the sale of clan land or redeem the same, I must confess, has over a period of time undergone serious Judicial vicissitudes - three E sets of different views -(1) the three customary months limitation period, as from the date of knowledge of sale, as per Cory and Hartnoll - Haya Customary Law, before the promulgation of the Magistrates Courts Act 1963 to be referred to as the Act, see Shumbusho v Nyamwiza d/o Magayane (1954) App. No. 21/1954 Central Court of Appeal, and F (2), after the Act above, same three months limitation period, was canvassed in Pancras Elias v Gratian Pancras [1968] H.C.D. No. 411 in which Seaton, J. as he then was, was influenced by the holding in the case of Garasiani G Kaberu Murefu and Farijala Katemara v Bushaija, in which it was held that, the Courts should always demand:

> strict proof of all the conditions enabling a relative to nullify the sale of clan land and should apply these conditions equally strictly H since to do otherwise would strictly all initiative and enterprise on the part of a purchaser of a clan-land.

Again in the case of Mzee Madrisa v Rwanturaki Mulagirwa [1977] L.R.T. No. 57, it was held that the limitation I period remained the Customary one of three months - that begins to run as from the

A time the intending redeemer, or sale nullifier becomes aware of the sale. The reasons given for the holding, are in my view sound, consonant and consistent with, not only the developmental speed, that is at this juncture advocated but also with what has hitherto been the customary law on the aspect. The solidification of the hitherto customary law on the B aspect into three months was development oriented, well and rightly conceived by those forefathers, and it is my view, that holding land for twelve years, being dogged and nagged by the fear that the shamba would be redeemed or the sale nullified, would be a negation to fast land development. C

The second view, - the twelve years limitation period, is held in Evarister Martin v Apolinary Eustad and Tefunwa Tibishubwamu [1968] H.C.D. 412 and Abel Rwebogora v Raphael Mukaja [1970] H.C.D. 100 that severally with the advent of the Customary Law (Limitation of Proceedings) Rules 1963 under the Magistrates Courts Act, 1963 D G.N. 311 of 1964, that

construed that item 6 in the schedule reading "proceedings to recover possession of land, or money secured on mortgaged land - 12 - years", - meant that the period of limitation for setting aside an alienation of E land, which includes sale nullification and redemption, was extended to twelve years. The above view has found attraction in a number of cases if not many.

But it all seems to me, that the construction that advocates twelve years limitation period, particularly after, the Magistrates Court Act, 1963, and the attendant Customary Law (Limitations of Proceedings Rules, does I think, F emanate from the construction of the wording, - proceedings to recover possession of Land, or money secured on mortgaged ... 12 years". It is my submission that, relevantly applicable here, is the first leg of the wording - "to recover possession of land." If this phrase, is intended to mean, to re-acquire to enter into land, and exercise physical possession, G over the land sought, by the party to the proceedings, then, the nullifier of sale of, or redeemer of clan land, does not unfortunately, fall into the acquisitive embrace of the above phrase - for the following reasons - first, because the said H nullifier, redeemer does not necessarily become the owner of the shamba redeemed, nor physically enter into possession of the shamba, and it may not even fall into his possession at all, if the redeem/purchase price is paid to him by, any clan member immediately, and second, he acts on behalf of the clan, and the original owner may get the said land by refunding I the redeemer, or sale nullifier by refunding the sum to the latter, without

A the party to the proceedings getting into possession. What seems to be the case, is that the redeemer or sale nullifier brings the clan land back into the control of the clan, without necessarily personally taking possession. It would therefore seem to me, that while the individual clan member may be said to be in possession of clan land he/she is occupying and may be he or she has sold the same, and hence the question of redemption or sale nullification, the clan in general can B only be said to be in control of clan land. And since the redeemer or sale nullifier of clan land all he does is to bring back the clan-land into the fold of the clan, and does plead the interest of the clan, and therefore acts for the clan, he cannot be C said to be recovering possession, of the said clan land, because such land never necessarily falls into his possession. It would therefore seem to me, that an action for redemption, or nullification of sale of clan land, is an action less for possession of, than the control of the same by the clan, I would for reason thereof, hold that the three months limitation D period, was never affected by Customary Law (Limitation of Proceedings) Rules, and the appellant was therefore time barred. Further under rule 5 of the Customary Law (Limitation of proceedings rules) the test of "unwarrantable delay", would apply to qualify the appellant as time barred. It seems to me, that, in either case, seven years delay in bringing this E action, the appellant was hopelessly time barred.

I would in finality conclude, that the severalty of one clan - sanction to sell, two, time limitation, or the accumulative effect thereof urge the dismissal of the appeal, and it is accordingly, with costs. F

Appeal dismissed

G

[zRPz]NATIONAL BANK OF COMMERCE v COSMAS M. MUKOJI 1986 TLR 127 (HC)

Court High Court of Tanzania -Mwanza
Judge Mwalusanya J

21 November, 1986

H CIVIL CASE 2 OF 1983

Flynote

Civil Practice and Procedure - Reviews - Application for a review -Chamber application not supported by affidavits - Chamber application supported by oral statements made by applicant in court - Whether such application for review is regular. I

1986 TLR p128

-Headnote

A The applicant, judgment debtor, had previously applied to raise the attachment of his house allegedly because it was under mortgage. The application was dismissed as it was found as a fact that the house in question was not under mortgage as claimed. He now applied for review stating in the present application that in fact he should have applied to B raise the attachment on the ground that the house was a residential one used by him and his family. The chamber application was not supported by affidavits.

Held: Although the application for review is irregular for not having been accompanied by affidavits the irregularity is not C fatal. The oral statements which the applicant made in court were sufficient to support the chamber application instead of the affidavits.

Case Information

Order accordingly.

D No case referred to.

[zJDz]Judgment

Mwalusanya, J.: The applicant Cosmas M. Mukoji has lodged two combined applications before E this court. First is the application under s.14(1) of the Law of Limitation Act, 1971 for leave to lodge an application for review out of time. Second is the application for review under Order 42 and section 48 of the Civil Procedure Code Act No. 49 of 1966 as amended by Act No. 11 of 1976.

F As for the application for leave to apply out of time I note that the application for review should have been lodged within 30 days from the day the judgment was delivered on 24/4/1986. This application was lodged on 7/8/1986. A delay of about two months. That is not a very inordinate delay. The applicant says that the delay was due to the fact that G he is ignorant of law and so he had to go around to persuade friends to help in drafting the necessary affidavits and chamber summons. The explanation given is understandable. In view of the fact that the delay was not too inordinate, I granted orally the leave to lodge the application for review out of time. H

As regards the application for review the facts are as follows. In April 1986 the applicant who is a judgment-debtor applied to raise the attachment of his house allegedly because it was under a mortgage. The application was dismissed as it was found as a fact that the house in question was not under a mortgage as claimed. He now states in the present I application for review that in fact he should

1986 TLR p129

MWALUSANYA J

A have applied to raise the attachment on the ground that the house was a residential one used by him and his family.

It is common ground that under s.48(a) of the Civil Procedure Code Act No. 49 of 1966 as amended by Act No. 11 of 1976, a residential house used by the judgment-debtor and his family is not liable to attachment. Counsel for the B respondents Mr. Rutabingwa feebly argued that the applicant is not using the house for residential purposes but renting it out. I adjourned the case for a day to give the respondent's counsel time to bring evidence as to whether the house was indeed rented out or not. The respondent's counsel failed to bring such evidence and in fact during the hearing he C intimated that he was withdrawing the contention that the house is rented out. So the position is that it is uncontroverted that the house in dispute is being used as a residence by the judgment-debtor and his family. It is therefore not liable to attachment.

D It is conceded by this court as ably argued by respondent's counsel that the application for review is irregular in that there is no affidavit accompanying the application but a mere statement of facts. But I hold that the irregularity is not fatal. There is no magic in affidavits and so we should not tend to canonize them. The oral statements which applicant made in court were sufficient to support the chamber application instead of the affidavits. E

Counsel for the respondent also argued that for any application for review there ought to be a discovery of a new fact which was not within the knowledge of the applicant at the first trial. He said that in here the fact that the house in dispute F is a residential one was within the knowledge of the applicant at the first trial and so the application for review is incompetent and ought to be rejected.

I agree that the fact that the house is residential was within the knowledge of the applicant at the first trial. But nevertheless the application is competent. There are two other legs under which an application for review can be made: G

(a) If there is an error apparent on the face of the record;

(b) If there is any other sufficient reason.

H I would and do hereby allow this application under any of these two legs. I ought on the earlier judgment of 24/4/1986 to have had taken judicial notice of the fact that the house was residential and thus should have raised the attachment. I correct that mistake now. I

I wish to make one last but vital observation. I find that these

1986 TLR p130

A two applications were in fact unnecessary. The applicant ought to have simply filed an application for an order to raise the attachment of the house under s. 48(e) of the Civil Procedure Code. This application would not have been res judicate as the matter in the former

application concerned a different matter that is whether the house was under a mortgage or not. The issue in the present case is patently different. The applicant was obviously wrongly advised. B
Be that as it may, the application is granted. The attachment of the house is raised as prayed. Each party to bear its own costs of this application.
Order accordingly. C
1986 TLR p130
D
[zRPz]REPUBLIC v ELIREHEMA NICOLAUS AND ANOTHER 1986 TLR 130 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

12th October, 1986
CRIMINAL REVISION 20 OF 1983
Flynote
E Criminal Law - Intoxicating Liquors Act, 1968 - Whether a barmaid can commit a crime under s. 14(3) of the Act.
Criminal Practice and Procedure - Charges - Charge of allowing the consumption of intoxicating liquor on licenced premises after authorized hours - Charge does not specify whether the licenced premise is situated in urban or rural area. F
-Headnote
The two accused persons, licencee and barmaid of Meru Bar in Kongwa, were charged with and convicted of the offence of allowing the consumption of intoxicating liquor on licenced premises after authorized hours c/ss 14(2), (3) and G 91 of the Intoxicating Liquors Act, 1968. The charge sheet did not specify whether Meru Bar was situated in an urban or rural area.
H Held: (i) The charge sheet should have specified whether the area of crime was urban or rural;
(ii) s.14(3) of the Intoxicating Liquors Act, 1968 is intended for and directed against licencees as opposed to servants like a barmaid.
Case Information
I Convictions quashed.
1986 TLR p131
LUGAKINGIRA J
A No case referred to.
Lyimo, for the Republic
Judgment
Lugakingira, J.: The accused persons, Elirehema Nicolaus and Mwajuma Waziri, were licencee and barmaid respectively of Meru Bar in Kongwa. At 3.30 p.m. on 12/12/82, a Sunday, the police arrived at the bar which they B found open and five customers were consuming beer

therein. The accused, who were in attendance, were arrested and charged with allowing the consumption of intoxicating liquor on licenced premises after authorised hours c/ss 14(2), (3) C and 91 of the Intoxicating liquors Act, 1968. Upon conviction they were fined Shs. 500/= each. The proceeding attracted the attention of my brother Maina, J. who admitted it to revision and minuted:

The second accused was a barmaid. In view of section 14 (3) of the Intoxicating Liquors Act, was the second accused's conviction D sound?

E I will shortly come to this matter. Presently, another and equally important matter comes to mind. Where exactly is Meru Bar?

The above question is a fundamental one considering that the law relating to drinking hours makes a deliberate distinction between urban and rural areas. In urban areas the holder of a retailer's on-licence may supply liquor for consumption on F or off the premises from 6 pm to 11 pm on Mondays to Fridays and from 11 am to 2 pm and 6 pm to 12 midnight on Saturdays, Sundays and public holidays. In rural areas the corresponding hours are from 3 pm to 8 pm on Mondays to Fridays and from 2 pm to 11 pm on Saturdays, Sundays and public holidays. There is a considerable uncertainty in this G case as to the location of Meru Bar. As per the charge sheet the alleged offence was committed "at Meru Bar Ugogoni area within the sub-district of Kongwa, Mpwapwa district in Dodoma Region" In the evidence of PW 1 the place is given as "Ugogoni in Kongwa area" and in the evidence of PW 2, the only other witness in the case, it is H "Ugogoni area Kongwa". In his judgment the trial magistrate refers to the place simply as "Ugogoni area".

It is evident that neither of the above descriptions or a combination of them places the bar anywhere with that distinctness I so crucial in a case of this kind. I perused the relevant Government

1986 TLR p132

LUGAKINGIRA J

A Notices which appeared in 1968, 1970 and 1972 lists among others a place called "Kongwa" (perhaps for Kongwa) and it may well be that Ugogoni is in Kongwa urban area. If that be the case then the charge sheet and the evidence, at least the former, should have distinctly named Kongwa urban area as opposed to the very vague expressions to which I B have referred. It is common knowledge that many of our towns and other urban centres bear the same names as the districts in which they are situated. And to talk of Ugogoni in what is Gogoland is definitely to compound the mystery. It is therefore important in a case like the present to be specific about the area of crime. The trial magistrate and the public C prosecutor probably knew the place in question, but it is different with me and I cannot in law assume facts where the statute labours to make a distinction. It is thus uncertain where Meru Bar is. If it is in an urban area, an offence was D committed; if it is in a rural area, no offence was committed having regard to the operating hours stated above. In short, the evidence was insufficient to found the convictions.

The foregoing suffice to dispose of the case but I feel duty bound to deal with the question raised by the admitting judge. E To recapitulate it is whether the second accused, a barmaid, was rightly convicted under s. 14 (3). The subsection states:

(3) Any licencee who contravenes or permits a contravention of this section shall be guilty of an offence.

F There can be no doubt that this provision is intended for and directed against licencees as opposed to servants like a barmaid. Mr. Lyimo, learned Senior State Attorney, drew my attention to the provisions of s. 14 (2), in particular to the clause "nor shall any intoxicating liquor, whenever or wherever obtained, be consumed on such part of the premises as G aforesaid", and argued that the second accused was equally guilty and punishable under s. 91 as she was found buying and even admitted consuming beer after authorised hours. In Mr. Lyimo's view s. 14 (2) prohibits even the very act of drinking. I was at first inclined to agree with him but after reflection I have felt constrained to differ. If Mr. Lyimo's H argument is pursued to its logical conclusion it would mean that even customers would be guilty of an offence. It would also mean that any person would be guilty of an offence if, coming along with his beer, he broke into a bar after I authorised hours, settled there and consumed the beer. But that cannot be correct for the act as a whole does not seek to

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LUGAKINGIRA J

A prohibit the consumption of alcohol at any time, and to attempt to do so would be a stupendous task indeed; what it seeks to do is to regulate the hours when consumption may be permitted on licenced premises. Hence s. 14 (2) first requires the premises to be closed to the public at all times other than those which are authorised. Secondly, it stipulates that no person other than the licencee, his family or servants shall be allowed to remain on or be permitted to the premises B after authorised hours. The operative words are "close", "allow" and 'permit" read in their proper grammatical context. When, therefore, the subsection is read as one whole, it is clear to me that the phrase "nor shall intoxicating C liquor ... be consumed" means that consumption shall not be allowed on the premises. Prohibition is so fundamental an issue that the legislature could not in its wisdom have tucked it away in the body of a subsection which is addressed to the licencee and I am unable to read any prohibition therein. D

In my opinion, therefore, the guilt of the second accused was constituted not by her own consumption of alcohol as such but being a servant at the bar, by permitting consumption to take place. There were five customers in the bar when the police arrived and she even took an order in their very presence. But as earlier stated s.14 (3) does not create an E offence as regards servants: it does so as regards licencees only. A proper charge against a servant should cite s. 90(1) apart from ss. 14 (2) and 91. It is under s. 90 (1) that it is an offence for a servant to do that which would be an offence if done by the licencee. The provision was not cited in this case but there can be no doubt that the second accused F understood the charge and was not embarrassed in her defence; but having regard to what has already transpired it is neither necessary nor desirable to decide whether the omission was fatal or curable.

For the reasons first above stated I quash the convictions, set aside the sentences and order that the accused persons be G refunded the fines.

Conviction quashed H

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[zRPz]MOHAMED KATINDI AND ANOTHER v REPUBLIC 1986 TLR 134 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

27th June, 1983.
CRIMINAL APPEAL 74 OF 1982
Flynote
B Evidence - Credibility - Evidence of a police decoy - Whether it needs corroboration.
Evidence - Cross-examination - Duty of defence counsel.
Evidence - Cross-examination - Failure of defence to cross-examine the other side on crucial matters - Whether defence may C canvass a point not raised in cross-examination.
Headnote
The appellants were charged with and convicted of corrupt transaction with an agent. Although there were five prosecution witnesses at the trial the appellants were convicted solely on the evidence of one witness, the Regional Crime D Officer. In their unsworn statements the appellants alleged that they gave the Regional Crime Officer Shs. 6,000/= to foot expenses incurred by the Police in looking for the second appellant as instructed by the Regional Crime Officer. The E Regional Crime Officer was, however not cross-examined by the defence on this crucial point while he was in the witness-box. On appeal the appellants argued that the prosecution had failed to prove its case beyond reasonable doubt because the Regional Crime Officer was an interested party and that his evidence was suspect. F
Held: (i) Although the Regional Crime Officer was not an accomplice, he was a decoy who was not a disinterested witness and his evidence had to be examined closely;
G (ii) though in such circumstances corroboration would not be required as a matter of law, it would hardly ever be safe in practice to convict unless there was corroboration;
(iii) it is the obligation of the defence counsel, both in duty to his client and as an officer of the court, to indicate in H cross-examination the theme of his client's defence so as to give the prosecution an opportunity to deal with that theme;
(iv) although it is undesirable to permit a party to canvass a point not raised in cross-examination, the court should not thereby be precluded from disbelieving a witness on a particular point merely because he was not cross-examined on that point; I

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A (v) the appellants' guilt had not been established beyond reasonable doubt.
Case Information
Appeal allowed
B Cases referred to:

1. R. v Herizon Magori [1970] H.C.D. no.148
2. Peter Kasembe v R. [1967] H.C.D. no. 338
3. Alli Kassam v.R [1972] H.C.D. no. 186
C 4. Rashidi v R [1971] H.C.D. no. 33
5. Mandia v.R [1966] E.A. 315
6. Browne v Dunn [1894] 6 R. 67
7. R v Hart (1932) 23 Cr. App. R. 202
8. O'Connell v Adams [1973] Crim. L.R. 113
9. Rex v Shija Mkina [1945] 12 EACA 64
D 10. Longinus Komba v.R [1973] L.R.T. no. 39

Alimwike, for the appellants.

Lyimo, for the Republic

[zJDz]Judgment

E Lugakingira, J.: I found this case rather difficult, and took time considering the judgment, on account of a number of mysteries.

The appellants Mohamed Katindi and Lucas Mazengo were convicted of corrupt transaction with an agent and sentenced to five years' imprisonment each. It was alleged that on 14/8/82 the two corruptly gave shs. 6,000/= to the F Dodoma Regional Crime Officer, one SSP Fridolin Mdendemi Julius, as an inducement to forbear further investigations against Lucas Mazengo who was suspected of being in unlawful possession of Government trophy. I will refer to SSP Julius simply as the Regional Crime Officer. Following conviction and sentence the appellants appealed here through G learned counsel Mr. Alimwike who had also represented them at the trial. Mohamed Katindi was at the trial the first accused and Lucas Mazengo was the second accused. I will where necessary retain those designations in this judgment. H

There were five witnesses for the prosecution at the trial but, in the final analysis, the appellants were convicted solely on the evidence of the Regional Crime Officer. It is therefore necessary to review that evidence and that of the appellants and to highlight the mysteries I have just alluded to. I

The Regional Crime Officer was between 30/6/82 and 18/7/82

A at Ilangali village pursuant to reports of illegal hunting in the area. While there he received information that the "second accused" was such an illegal hunter but he could not find him. He later gathered that the "second accused" was at Iringa. On 22/7/82, after returning to Dodoma he dispatched PC. Nicolaus (PW4) to Iringa to look for the "second accused". B We now meet the first mystery. PW4 testified that he was dispatched to look for one Charles Mazengo and not Lucas Mazengo. He was also not told the reason why this Charles Mazengo was required. Be that as it may, his mission was unsuccessful.

C The first accused was on his part a frequent visitor to the Office of the Regional Crime Officer. For reasons we do not know his cattle had been rounded up on the orders of the RCO and used to see the Regional Crime Officer in that connection. On 12/8/82 he thus went to see

the Regional Crime Officer. On this occasion he also had another message. D He told the Regional Crime Officer that he knew the whereabouts of the second accused and offered to produce him. And therein lies the second mystery: Firstly, the Regional Crime Officer had not previously spoken to the first accused E about the second accused. Secondly, the Regional Crime Officer declined the offer and said it was up to the second accused to deliver up himself or not. Still, and I think to the Regional Crime Officer's surprise, the first accused turned up the following day, accompanied by the second accused. In the words of the Regional Crime Officer, "The first accused F then informed me that the person in his company was Lucas Mazengo the man he (sic) was being looked after (sic) by the police. By then I did not know the second accused....". The first accused then allegedly asked the Regional Crime Officer to forgive the second accused. The Regional Crime Officer asked the first accused to leave, which the latter did.

G Thus left alone, the Regional Crime Officer began to interrogate the second accused. In the course of the interrogation, the second accused allegedly admitted to be in possession of a gun and to have killed eight elephants and sold their tusks at Iringa. Hearing this the Regional Crime Officer directed one Insp. Ntobi to take a statement from the H second accused. This was done and the statement was handed over to the Regional Crime Officer. Then another mystery: In spite of the second accused's alleged admission and in spite of the alleged search for him, the Regional Crime Officer told him he could go home and return the following day. But as if liberty meant nothing to him, the second I accused did not leave. He allegedly hung on, begging for forgiveness, and offered to give

A "something".The Regional Crime Officer resisted but the second accused allegedly insisted and in the end they settled for sh. 6,000/=. The Regional Crime Officer told the second accused to bring the money the following day.

Meanwhile the Regional Crime Officer arranged a trap. On 14/8/82 a civilian, one Barnabas Tendeka (PW2), was planted behind a shelf somewhere in the Regional Crime Officer's Office. Inspt. Ntobi (who did not testify) and D/Sgt B Semunyu (PW3) were planted in an adjoining room. Shortly both appellants entered the Regional Crime Officer's Office. The Regional Crime Officer inquired whether he could be of any help. The first accused put on a jacket and C carried the money. He took it out stating: "Tumekuja kwa shughuli zetu za jana". At the request of the Regional Crime Officer the first accused started to count the money. The Regional Crime Officer gave the signal whereupon PW3, PW3 and Insp. Ntobi entered. Insp. Ntobi asked the appellants what business they had there. The first accused replied: D "Tumemletea fedha Mzee kwa sababu ya matatizo ya kijana huyu" and, in another mystery, he continued counting the money, quite unperturbed. The other details are unnecessary. The appellants were there and then arrested and charged as aforesaid. E

Both appellants gave unsworn statements. The first accused said that on 12/8/83 the second accused, a relative, called at his house. The first accused took that opportunity to inform him that the police were looking for him. The second accused replied that he had already heard of

that and intended to see the Regional Crime Officer the next day to know F what it was all about. He asked the first accused to give him company. The latter agreed. It can safely be said that it was after this meeting that the first accused went off to inform the Regional Crime Officer that he could produce the second accused. Hence on 13th August 1982 both appellants called at the Regional Crime Officer's Office. The first G accused introduced the second accused and was asked to leave. He left, going home straight. Next day, the second accused called at his house again and told him that he was off to see the Regional Crime Officer again. Since the first accused similarly desired to see the Regional Crime Officer in connection with his own problems, they set off together. H On the way, the second accused told him that the Regional Crime Officer had demanded payment of shs. 6,000/=, the expenses incurred in looking for him, and he was taking the money. He asked the first accused to hold the money for the I latter had a jacket. The first accused obliged. When they entered the Regional Crime

A Officer's Office the first accused asked the Regional Crime Officer whether it was true he had required the second accused to refund expenses. The Regional crime Officer agreed. He then produced the money which he was asked to count. The rest of what transpired is again unnecessary.

B The statement of the second accused was substantially the same. The additional part of it was that when they were left alone with the RCO on 13th, the RCO told him that he had been looked for illegal hunting. The second accused denied being an illegal hunter. An argument ensued in which the RCO told him that he had been named by his colleagues at Ilangali and threatened that he would be beaten like them if he persisted in his denial. Indeed we gather from the C evidence of the RCO that he had made several arrests at Ilangali and that it was from some of those arrested that he had gathered information against the "second accused." The second accused still denied but he was forced to sign a D statement. The RCO then told him that the police had looked for him extensively and had incurred shs. 6,000/= which he had to refund. He took the money the following day accompanied by the first accused. The rest is again the same.

E In a reasoned judgment the learned trial Magistrate came down with a number of findings. Most pertinently, he found that the second accused was being looked for by the police; that he had delivered himself at the Police Station; and that both appellants gave shs.6,000/= to the R.C.O. However, he held to be false the story about the money being a refund of F expenses. His reasons were that the story was not put to the RCO in cross-examination; that if it were true no trap would have been laid; and that the RCO was a witness of truth. But he also observed that the RCO was an accomplice and therefore required corroboration. He observed that the conversation which ensued during the actual transaction did G not suggest that the money was a bribe. There was in particular an incriminating statement which was attributed to the first accused but he held it inadmissible since it was made to a police sergeant. I will come to that statement presently. In the end, after duly warning himself on the danger of convicting on

uncorroborated accomplice evidence, he believed the H RCO that the money was given as a bribe. He therefore proceeded to convict.

I will conveniently start with the statement attributed to the first accused in answer to a question by PW3, a Police I sergeant. PW3 testified that when he entered the RCO's Office he asked the first accused: "Fedha hizi ni za nini? The first accused allegedly

A replied: "Fedha hizo nimepewa na mshitakiwa wa pili ili ambembeleze RCO ikiwa ni chai ili amsamehe mshitakiwa wa pili katika kesi ya meno ya tembo ambayo alikuwa anaishughulikia RCO". He went on to claim that the second accused then confirmed that statement. The trial Magistrate was of the view that it was a confession. I B agree; if that statement were ever made it amounted to a confession. The problem is that the magistrate then disallowed it for having been made to a police officer. I am of the view that he misdirected himself in disallowing it on that ground. A confession made to a police Officer of or above the rank of corporal, as PW3 was, is admissible against the maker if it is C made voluntarily, the onus being on the prosecution to prove its voluntariness. In this connection the attention of the learned magistrate is drawn to s. 27 of the Evidence Act as repealed and replaced by Act No. 19 of 1980. If therefore the statement was ever made, and although there were in attendance three Officers, all of whom ranked above corporal, it was admissible if it was voluntarily made. D

However, I am on my part inclined to disallow the statement on a different ground. It is difficult to believe that the statement was made. Looking at it, it sounds like a quotation from a charge sheet, complete with the usual and necessary E ingredients of corruption. I am not prepared to believe that the first accused, a man appearing on the record as a 51-year old peasant, could have made such a professional statement. I think, with respect, that it was an ambitious contribution by the police officer who must have been not a little anxious to assist the prosecution. I reject it on that F ground. Moreover, there were other statements attributed to the appellants, and similarly incriminating, which the trial magistrate rejected for being contradictory and incredible. Most outstanding was this: "Mnaelewa kuwa hii ni rushwa?" "Ndio, tunaelewa." This came from PW2, the civilian, but it never featured in the evidence of PW3 to G whom PW2 attributed the leading question. Mr. Lyimo the Senior State Attorney who appeared for the Republic, conceded that what was alleged by the prosecution witnesses to have transpired at the giving could not be relied upon. I accept that concession. In so doing, I consider justifiable the finding by the learned trial Magistrate that what transpired H at the giving did not disclose a corrupt transaction.

From here we can go to what transpired on 13/8/82 between the RCO and the second accused. The RCO claimed that the second accused offered a bribe, but the latter claimed that the RCO ordered him to refund Police expenses. The trial I Magistrate found the RCO

A truthful but not before observing that he was an accomplice for "taking part in the offence of corruption." The Magistrate therefore felt obliged to look for corroboration before falling back

to the RCO's word. I think it is desirable B to clear up this issue first. Was the RCO an accomplice? Mr. Lyimo was reluctant to support the assessment of the RCO by the trial magistrate and submitted that he was merely a decoy whose evidence did not require corroboration. He supported his argument with R. v Heziron Magori [1970] HCD n. 148 in which Georges, C.J. said:

C "It is my view also that even in cases where it could be said that a Police agent has instigated an offence by being responsible for the suggestion that it be committed this agent could not be described as an accomplice, in the ordinary sense of the term, whose evidence needs corroboration. This is so because ... the complicity goes only to the actus reus. There is never any intention on D the part of the agent to commit an offence ..."

I agree. If therefore the RCO is to be believed, as the learned trial magistrate did, and considering the trap he went E ahead and laid, it is then apparent that he was merely a decoy without any intention on his part to commit an offence. In that case he was not an accomplice in the strict sense and his evidence did not, as a matter of law require corroboration.

F The problem in this case is whether it was safe to believe the RCO regardless of whether he was an accomplice or not. In matters of credibility the trial court is undoubtedly the best judge and there is a host of decisions to that effect. An appellate court will only reassess the credibility of witnesses if there are circumstances of an unusual nature which appear G in the record. From my view of the evidence in this case I think there are circumstances which warrant the reassessment of the RCO's credibility. Firstly, if the second accused is to be believed it would mean that the RCO acted in bad faith. He deceived the former intending to trap him in a bribery charge. A person of such dishonesty would H require corroboration. Secondly, I agree with Mr. Alimwike that the RCO was not a disinterested witness. He had camped in a village for over two weeks and had even sent an envoy to Iringa. He therefore had cause to see his efforts rewarded. It was held in Peter Kasembe v. R [1967] HCD n. 338 that a police decoy, even though not an accomplice, I is not a disinterested witness and his evidence must be examined

A closely. The court said: "Though corroboration would not be required as a matter of law, it would hardly ever be safe in practice to convict unless there was corroboration." Thirdly, we have those mysteries which I have highlighted and to which the learned trial Magistrate made no reference at all. In these circumstances, there is every justification to B reexamine the RCO's credibility and the only way is to look for corroboration. I will do so as I now proceed to consider the case of each appellant in turn.

The first accused was not present when the RCO was interrogating the second accused. What transpired between the two was therefore unknown to him. Further, no one else, but the appellants alone, knows what transpired between them C on the morning of 14th. The RCO conceded both factors and said: "The conversation between myself and the second accused was never witnessed by any other person. It is difficult for me to know what the first (sic) accused told the second (sic) accused outside." I believe he meant to say, and could have said, that it was difficult for him, to know what D the second accused had told the first accused outside. That

being the case, the story of the appellants remains unchallenged, namely, that the second accused told the first accused that he had been ordered to refund Police expenses. E The first accused could therefore not have associated the money with bribery. It was argued by Mr. Lyimo that the first accused knew the money to be a bribe and suggested two reasons. First, he pointed out that on 13th the first accused allegedly asked the RCO to forgive the second accused. Secondly, that the appellants were together at the taking of the F money. On my part, I find it difficult to infer guilty knowledge from any of those factors and I think, too, that the first factor is doubtful. In the first place, the first accused never admitted asking the RCO to forgive the second accused. On the other hand, it is doubtful whether he could in seriousness have done so. What transpires is that the first accused had G an interest in the apprehension of the second accused. It occurs to me, and I think I am correct in saying, that he was a treacherous character who was desirous of exchanging the second accused as ransom for his impounded beasts. That explains why on 12th he went off fast and triumphantly to tell the RCO that he would produce the second accused after H learning of the latter's intention to see the RCO. It is unlikely that a man of that attitude and ambition could honestly, if at all, ask the RCO to forgive the second accused. On the other hand, I think the act of going together on 14th can be differently explained. The first accused had his own problems for which he had become a frequent I

A visitor to the office of the RCO. Indeed he stated that, "I also told Lucas that I was also going to the same place as I had some matters with the RCO." Since the existence of these "matters" was not a tale but a fact featuring in the prosecution case, the first accused was entitled to the benefit of the doubt. All in all, I am unable to find corroboration in B the factors suggested by Mr. Lyimo.

There was then a factor which went some way to suggest innocence on the part of the first accused. It was one of those mysteries. Even after the police officers had entered on signal, and while hostile questions were being shot from every direction, the first accused continued counting the money without worry. The first accused is an old peasant, true, but he C certainly knows what is a bribe, and that is why he denied the charge. I think that this conduct was inconsistent with guilty knowledge and puts one to inquiry. It is significant that the trial magistrate never referred even to this incident. Had D he done so, and generally directed himself as I have endeavoured to do, I cannot be certain that his decision must in reason have been the same.

Regarding the second accused, Mr. Lyimo argued that corroboration could be found in the following factors: that the E second accused was a wanted person and knew it; that he therefore surrendered himself to buy his freedom; and that money was given in fact. I think, with respect, that these arguments beg the question as they presuppose the existence of facts, themselves requiring demonstration. We can begin with the question whether the second accused was the wanted person. That question appears highly debatable. It was an undisputed fact that the RCO did not know the person he F wanted. Secondly, those who named that person to him did not

appear to confirm that it was the second accused. They were named persons so there was no secret about it. Finally, the wanted person was Charles Mazengo and not Lucas Mazengo. It is not unlikely that some enthusiasts or sympathizers, wrongly but in good faith, decided to tip the second G accused. The possibility of this is inferable from the conduct of the RCO. After he had seen and interrogated the second accused he still allowed him to go home. I think that this belittles his allegation that the second accused admitted being an H illegal hunter. It borders on the incredible, and I am not persuaded to believe, that a person so much sought after, a person who fortunately admitted the offence, a total stranger to the RCO, could still be allowed to go home - and where? - without further ceremony. It could well be true, as claimed by the second accused, that he did not admit the offence I and the RCO might have

A realised that he had the wrong man on his hands. I am unable to interpret his conduct more reasonably and, therefore, I feel bound to distance myself from the finding of the trial magistrate.

Mr. Lyimo's other suggestion was that the second accused surrendered himself to buy his freedom. That is of course interesting - a free person surrendering to buy his freedom! I think it accords more with reason to say that the conduct of B the second accused was consistent with innocence. He might have wanted to see the RCO, and so he said, to protect his innocence, and went ahead without invitation. He therefore does not appear to have had a motive to offer or give a bribe. In Alli Kassam v. R. [1972] HCD n. 186, to which Mr. Lyimo referred, Onyiuke, J. characterised motive as C "something that animates an intentional act - the ulterior intention with which an intentional act is done." In that case there was this ulterior intention - something that animated Kassam's intentional act of giving money. He was desirous of D travelling abroad and wanted a certificate of good character. The certificate did not attract a fee. Yet Kassam gave money to a police Officer to be issued with one. It was argued by his counsel that he acted out of ignorance and out of fear of the police. In Onyiuke, J's view if Kassam did not know that he was entitled to the certificate, his motive was to E buy it - to get the Police Officer to give him one for a bribe. If he acted out of fear, his motive was to worm himself into Police confidence by buying their loyalty. The learned Judge held that the transaction was corrupt because, either way, Kassam gave the money to compromise the Police Officer in the honest and impartial discharge of his official duties. F There are cases indeed where the briber's motive may not be apparent. It was therefore held in Rashid v. R. [1971] HCD n. 33 that in a charge of corruption it is not necessary to prove an offence on the part of the briber. It is nevertheless evident that even in that case Rashidi had a motive. For reasons best known to himself, he was toying with G his conscience. When he saw a Police vehicle he suddenly reversed his own vehicle and sped off like a madman. That alerted the Police who gave chase. He was only caught because his vehicle was disabled after colliding into a gatepost. H He then anxiously offered shs.20/= praying to be let off. There was therefore something that animated his intentional act of offering the money. Motive is thus an essential ingredient and a charge of corruption which is

devoid of motive appears to be academic. For without motive an intention to corrupt can hardly arise. As stated by the Court of Appeal in Mandia v.R. [1966] E.A. 315, 318: I

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A "... the appellant's state of mind, which in our view included motive and intention, seems to us to be an essential and material factor in determining whether, in making the payment, he was acting corruptly or not. This had always been the approach adopted by the courts in East Africa, and in our opinion it is the correct approach..." B

The Court further said (at p. 319):

We consider that the motive prompting the giving of a bribe is a relevant consideration in deciding whether or not the bribe was C given corruptly.

The court was then considering s. 3(2) of the Kenya Prevention of Corruption Act (Cap.65) which is in pari materia with s. 3(2) of the Prevention of Corruption Act, 1971 of this country. In that case the appellant, who was a Magistrate, D had in fact given a bribe to a Police Constable, his motive being to test the constable as he had "heard of these things and wanted to know if it was real." He was convicted by the trial judge who held that it was not necessary to prove a corrupt motive but merely an intention to corrupt. The Court of Appeal reversed that decision and acquitted the E appellant holding as set out in the passages quoted above.

In the case before me, I have not found it conclusively established that the second accused was the wanted person. I have also held, on a reasonable interpretation of his conduct, that he might have delivered himself to the RCO to F demonstrate his innocence. There is therefore no definite evidence that he had a motive to offer or give a bribe. As found by the trial Magistrate, and now demonstrated, the evidence of the RCO is thus bereft of corroboration. While in G no way alluding to the integrity of the RCO, but having in view the principles of the Criminal Law, I am thus bound to give the second accused the benefit of the doubt on what transpired between him and the RCO. It then becomes unsafe to sustain the conviction. And that in my view is sufficient to dispose of the Appeal but there is one other matter which H demands the attention of the court.

The omission by the defence counsel to put the appellants' prospective defence to the RCO during cross-examination was a decisive factor in the decision of the learned trial Magistrate. He expressed himself in relatively strong terms on this I matter and I consider it desirable to cite the pertinent part of his judgment:

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LUGAKINGIRA J

A I have observed that ample opportunity was offered to the defence to cross-examine the PW1 but never at any moment was the PW1 asked a question about having told the second accused to pay the Police expenses. This would have been one of the most crucial questions to ask the PW1. No accused in his full senses would have fortune to ask this question, let alone an experienced and qualified counsel as in this case. B

I agree that the omission was a disturbing one. It is the obligation of a defence counsel, both in duty to his client and as an Officer of the court, to indicate in cross-examination the theme of his

client's defence so as to give the prosecution an C opportunity to deal with that theme. For to withhold the position of the defence and thereby take the prosecution and the court by surprise, does to my mind, portray a poor appreciation of the meaning and purpose of any trial. I have no reason to suspect that the omission was deliberate in this case and I accept Mr. Alimwike's explanation that it was D oversight on his part. It would certainly be deplorable if such omission were to be identified as a deliberate mischief. There also appears to be a price for it, whether it be deliberate or accidental. In the case of Browne v Dunn (1894) 6 E R. 67, the House of Lords held that the witnesses had not been cross-examined on a material matter the jury could not afterwards be asked to disbelieve their testimony on that matter. That decision, as well as a similar decision in R. v Hart (1932) 23 Cr. App. R. 202, were followed by the High Court in England in O' Connell v Adams (1973) Crim. L.R. F 113 where it was held that if it is part of the client's case to challenge a witness as not speaking the truth at a trial on an indictment, the professional advocate has to put the matter fully and fairly to the witness and, if that is not done and the advocate in his speech tries to rely on the falsity of the witness's evidence, the court should check him at once. In G R. v. Hart (above) the Court of Criminal Appeal similarly said:

In our opinion, if, on a crucial point in the case, the prosecution intend to ask the jury to disbelieve the evidence of a witness, it is right and proper that witness should be challenged in the witness box, or at any rate, that it should be made plain, while the H witness is in the box, that his evidence is not accepted.

This passage was cited with approval by the Court of Appeal for Eastern Africa in Rex v Shija Mkina (1945), 12 I EACA 64, at p. 66.

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A It is evident, however, that this apparently strict rule has since received clarification, and impliedly criticized, as revealed by the views expressed in O'Connell v Adams (above). It also transpires that case is distinguishable from the case before me. The court there went on to observe that in Magistrates' courts frequently one party was represented by B a person who was not a highly qualified professional advocate and was insufficiently skilled to appreciate the necessity of putting crucial matters to a witness for the other side. The court stated that it could not be said, as a matter of law, that justices must accept a witness's evidence merely because it was not challenged. In a commentary on the case - see C O'Connell v Adams [1973] Crim. L.R. pp.114 - 15 - the editors suggest that the rule in Browne v Dunn (above):

bars the party who has omitted to cross-examine from asking the jury to disbelieve the witness. Clearly it cannot bar the jury from D disbelieving him; and presumably it would be wrong for the judge to tell the jury that they must believe the witness; though he could of course point out that the witness's evidence was un-challenged. Though the Magistrates largely fulfil the role of the judge as well as the jury, it seems right that they, similarly, should be untrammelled by rules as to what they must or must not believe. E On the other hand, it is obviously desirable that it should be brought to the notice of any witness, before he leaves the

witness box, that his evidence is doubted in some respect, since it is possible that he may be able to resolve the doubt. F

With these observations and comments, I am in agreement. While not attempting to lay down a general rule, therefore, I G think it can still be said that although it is undesirable to permit a party to canvass a point not raised in cross-examination, the court should not thereby be precluded from disbelieving a witness on a particular point merely because he was not cross-examined on that point. This proposition appears to accord with the realities of our own H environment where, in Magistrate's courts most accused persons do not have access to professional representation nor do they have the skill to conduct their cases. Not infrequently cases come up where there has been no cross-examination, at all, or, there has been poor and irrelevant cross-examination, but then the accused comes up with a I defence which could possibly be true. Injustice could therefore be occasioned if the court were to believe a prosecution

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A witness on a particular matter merely because he had not been cross-examined on that matter.

I have also said that O'Connell v Adams is distinguishable. In that case the witnesses had not been cross-examined at all, but in the instant case that RCO was in fact cross-examined and it was brought to his notice that his evidence was B doubted in some respect. Learned defence counsel raised the question of identity -whether the second accused was the wanted person; he also raised the question of motive - whether the second accused had reason to give a bribe. I think that on a fair and judicious appreciation of this line of questioning, the defence was entitled to expect the court to construe the evidence of the RCO as not accepted. C

I think, finally, that this matter may be concluded by stating that it all boiled down to the onus of proof. The onus is, unless otherwise stated, on the prosecution to prove the guilt of the accused beyond reasonable doubt. An accused D person may not be convicted on the weakness of the defence - which would include the omission to cross-examine on a crucial matter - but can only be convicted on the strength of the prosecution case. Not even lies proceeding from the mouth of the accused would absolve the trial court from ascertaining from the whole evidence whether the offence has E been proved beyond reasonable doubt: Longinus Komba v. R. [1973] LRT n. 39. In his judgment the learned trial magistrate stated that he had "no reason whatsoever to disbelieve the testimony of the PW1." I have already shown that there were not one but a number of reasons for doubting the RCO and it is unnecessary to repeat them. It follows in my F view that the appellants' guilt had not been established beyond reasonable doubt.

I allow the appeal, quash the convictions and sentences and order the appellants' immediate release from custody.

G Appeal allowed.

1986 TLR p148

A

[zRPz]JOSEPH MAPEMA v REPUBLIC 1986 TLR 148 (HC)

Court High Court of Tanzania - Mtwara
Judge Msumi J

23rd June, 1984.
CRIMINAL APPEAL 32 OF 1981
Flynote
B Evidence - Handwriting expert - Authorship of a piece of handwriting - Whether to be proved only by handwriting expert.
Criminal Law - Accused convicted and sentenced on both forgery and fraudulent false accounting - Illegal.
-Headnote
C The appellant was charged with and convicted on 22 counts of forgery, 22 of fraudulent false accounting and 23 counts of stealing. On appeal he argued that evidence on the disputed handwriting was not given by an expert. Moreover it was pointed out that the trial court was wrong in convicting the appellant on both forgery and fraudulent false accounting. D
Held: (i) For the purpose of enabling a court to decide the author of any piece of handwriting in dispute, the opinion of a person who is conversant with the handwriting of the disputing author is as good as, if not sometimes better than, that of a handwriting expert; E
(ii) it was wrong for the trial court to convict and sentence the appellant on both forgery and fraudulent false accounting.
Case Information
Order accordingly. F
Cases referred to:
1. Yusufu Gitta v R. [1950]E.A. 211.
2. Joshua Nkonoki v. R. [1978] LRT n. 24.
3. R. v Kundansari [1970]HCD 273.
G 4. Mwiruri v Rep. [1973] E.A. 86.
5. Re London and Globe Finance Corporation [1903] 1 Ch. 728.
6. Republic v Ruth Mgitu [1975]LRT n. 14.
[zJDz]Judgment
Msumi, J.:In the District Court of Mtwara the appellant, one Joseph Mapema, was charged with a total of 67 counts H under the Penal Code. These consisted of 22 counts of forgery, 22 counts of fraudulent false accounting and 23 counts of stealing. He was convicted and sentenced on all counts. This appeal is against both convictions and sentences.
I First let me dispose of appellant's complaint that the learned trial District Magistrate refused him adjournment of the case so as

A to enable him to contact his advocate. In other words the appellant is submitting that the trial court deprived him of his right to be legally represented. This is a weighty and serious allegation. The importance with which courts attach on the right of an accused to be legally represented was clearly demonstrated by the High Court of Uganda in Yusufu Gitta v. R. [1957] E.A. 211 at p.213 when it said: B

Every accused has the undoubted right to be defended by counsel. Galos Hired and Anor v R. and Kingston v R. regarded as authority for the proposition that if an accused is deprived of that right through no fault of his own and through no fault of his C counsel and a conviction follows, the conviction will be quashed on appeal.

D This observation was quoted with approval by this court in Joshua Nkonoki v R. [1978] LRT n. 24. Going by the record, what happened in the present case is that after several adjournments which lasted for over ten months the case was fixed for hearing on 16th June 3, 1980. But when the case came up on that day appellant was absent; and for the E first time the court learnt from his wife that he had gone to Dar es Salaam to arrange for an advocate. The case was thus adjourned to 3/7/1980 for mention. On that day appellant appeared with his advocate one Mr. Putika. Then it was mutually agreed by both the learned State Attorney and the learned Defence Counsel that the case should be fixed for hearing on 1st September, 1980 - i.e. about three months later. But without even the least courtesy of communicating F with the court, the learned defence counsel unilaterally absented himself on that day. Meanwhile as on the previous hearing day, almost all prosecution witnesses, including those coming from outside Mtwara Region, had turned up. G Appellant, who was then serving a six month jail term for jumping bail asked for farther adjournment to sometime in January the following year when he would have completed his sentence and hopefully be able to arrange for legal representation. The learned trial magistrate refused that application. With respect, I would not have done otherwise. H

Whether or not to grant an adjournment of a trial is a matter within the discretion of the court; of course like all other discretions, it must be exercised judiciously. In this case, appellant had more than enough time to look for an advocate; in I fact he managed to get one. In refusing the appellant's request, the learned trial magistrate

1986 TLR p150

MSUMI J

A quite rightly pointed out the fact that no reason whatsoever had been communicated to the court why the learned defence counsel did not turn up. If I may be permitted to add that from the trend of the case, it is doubtful whether appellant would have been able to persuade Mr. Putika or any other advocate at all, to defend him even if his request for B such unreasonably long adjournment had been sustained. In the circumstances of the case I think the trial magistrate exercised his discretion quite prudently. In any case, the root cause of his failure to secure legal representation lies right within the exclusive precincts of the appellant himself and his, if I may respectfully be permitted to call him, carefree C advocate. I think I have said enough on this general complaint; let me turn my attention to the main aspect of this appeal.

The undisputed facts of the case were that the appellant was employed by Customs and Excise Department as an Accountant-Cum-Cashier. In the broad term, his work entailed the collection of sundry customs duties from various D clients. And for this, appellant constantly maintained the following books of account: Petty Cash Collectors Receipt Books, Revenue Cash Collectors Books and Bank Paying in Slip Books. The assessment of these duties were being done by other customs officials who were required to reflect the amounts due in what are called "source documents" E which included Sales Tax Entries and Import Duty Entries. Thus appellant was supposed to collect from the customers the amount of money shown in the respective source document. In acknowledgement of these payments appellant issued the customers with the original copies of the cash collectors receipts. The duplicate copies were attached (glued) to the F respective source documents; the triplicate copies were sent to the head office in Dar es Salaam, and the last copies i.e. the quadruplicates were retained in the receipt books which were kept here at Mtwara for office reference. Then at the G end of each day appellant was supposed to enter into Revenue Cash Collectors Book all the collections made on that particular day. And all the money so collected entered in the Revenue Cash Collectors Book was to be banked by the appellant by using Official Bank Paying in Slips. H

It is contended by the prosecution, and disputed by the appellant, that on various dates appellant altered the triplicate and quadruplicate copies of various cash collectors receipts by inserting in them less amount of money than what he had actually collected as reflected in the original and duplicate copies. And furthermore appellant failed to account for the I differences in these collections

A because in the respective Revenue Cash Collectors Book folios and Bank Paying in Slips he reflected the lesser amounts as inserted in the altered triplicate and quadruplicate copies. These allegations form the basis of the offences of forgery, fraudulent false accounting and stealing by public servant on which the appellant was convicted.

B Starting with the forgery counts, the alleged alterations are said to have been made on both triplicate and quadruplicate copies of collectors cash receipts. However, the only copies made available to the court were the quadruplicates which were retained by the collecting office at Mtwara. For unknown reason, none of the corresponding triplicate copies which C were supposed to be at the Customs headquarters in Dar es Salaam were availed to the court. It appears prosecution is assuming that since the obvious reason behind these alterations was to enable the appellant to pocket the differences between the money shown in the original copies and the lesser sums shown in the quadruplicate copies, it necessarily D followed that similar alterations were inserted in the triplicate copies in order to smoke-screen his fraud from the eyes of the auditors at the head office where the said triplicate copies were supposed to be checked for reconciliation of the appellant's account. With respect, appealing as it may sound, such reasoning has no room in criminal law parlance. E Whereas it may reasonably be assumed that appellant made some alterations in these triplicates, it will be taking the assumption too far to hold that those alterations are similar to the ones appearing in the quadruplicate copies. For this

reason it would have been prudent if the prosecution had confined their allegations to the quadruplicate copies only. F However, this irregularity notwithstanding, I am of the opinion that appellant has not been prejudiced; he sufficiently knew the nature of the offences with which he was being charged. I think this is a justifiable situation for invoking the provisions of section 346 of the Criminal Procedure Code. G

Apart from the aforementioned irregularity, it is axiomatic that appellant fraudulently altered the quadruplicate receipt copies by showing less amount of money than what he had collected and reflected in the original copies. Evidence shows H amply that it is the appellant who made these alterations. One of the grounds of appeal advanced by the appellant is that prosecution ought to have called a handwriting expert in order to prove that the handwriting and signatures in these offensive quadruplicate copies were those of the appellant. It appears that appellant is no better than the majority of I laymen in harbouring the common erroneous view that the

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MSUMI J

A authenticity of a disputable piece of handwriting can only be ascertained by professional observation of a handwriting expert. That is not the law. For the purpose of enabling a court to decide the author of any piece of handwriting in dispute, the opinion of a person who is conversant with the handwriting of the disputing author is as good as, if not B sometimes better than, that of a handwriting expert. In any case, Section 49(1) of the Evidence Act makes admissible opinion evidence of handwriting by anyone acquainted with another's handwriting. Sub-section (2) provides that for the purpose of sub-section (1) a person is said to be acquainted with the handwriting of another person when he has seen C that person write, or when he has received documents purported to be written by himself or under his authority and addressed to that person or when in the course of ordinary business, documents purported to be written by the person have been habitually submitted to him - see R. v Kundansari [1970] H.C.D. 273. Conscious of this provision, D prosecution in this case called as one of their witnesses one Fiden Hussein Rajabali (PW7) who among other things, testified that he was conversant with the handwriting of the appellant and hence identified that the handwriting and signatures in all the quadruplicate copies in issue were that of the appellant. As a basis of his acquaintance with the E handwriting of the appellant, the witness told the court that as the owner of M/S Abassi Clearing and Forwarding House he had close working relation with the appellant since 1978 when he was transferred to Mtwara. And for the whole of that period the witness had seen the appellant writing and signing various documents; and he had seen and dealt with F various documents written and signed by him. In the course of preparing this judgment I went through, leaf after leaf, all the quadruplicate receipt copies retained in the ten booklets produced to court as exhibits. Each booklet contained 50 G quadruplicate copies and for the ten booklets, I have found out that a total of about 60 receipts were issued to M/S Abbas Clearing and Forwarding House, and they covered the period between December, 1977 to September, 1979. No doubt this fact adds weight to the witness claim that he is quite conversant with the handwriting of the appellant. If I H may boldly say that in the particular facts and circumstances of this case, the opinion of this witness is more dependable than that of a handwriting expert. I am thus

convinced, like the learned trial magistrate, that the handwriting and signatures in all the quadruplicate copies in question are those of the appellant. I
Let me end my discussion on these forgery counts by saying
1986 TLR p153
MSUMI J
A that all the altered quadruplicate receipts are false documents as defined by law. The effect of these alterations is, as is commonly said, to make them tell lies about themselves. On the mere look of them one gets the impression that each of them is a copy of the respective original receipt and that all what is contained in each of them is substantially the same as B that contained in the respective original copy. In other words these quadruplicate receipt copies do not merely contain some false information but they also purport to be what they are not. This is what is technically known as automendacity.
C Now turning to the 22 counts of the fraudulent false accounting; it has come to my notice that the allegation in support of all of them is the same as that on which the forgery counts are founded. For just as in the forgery counts, the particulars of the offence for all these counts are that appellant fraudulently altered the quadruplicate copies of various cash collectors receipts by showing less amount of money than that which has been collected and reflected in the original D copies. What the prosecution is trying to do here is to charge the appellant with two separate offences but both of which are based on the same set of facts. This is wrong; it offends the well settled rule of principle against double E jeopardy as entrenched in section 48 of Interpretation of Laws and General Clauses Act, Cap. 1. The section provides:

48. Where any act constitutes an offence under two or more acts, the offender shall, unless the contrary intention appears, be liable to be prosecuted and punished under either or any of such Acts, but shall not be liable to be punished more than once for F the same offence.

Provision similar to this is embodied in the Kenyan Interpratation and General Provisions Act, Cap.2 as section 63. The G High Court of Kenya, whose decisions are of high pursuasive value to this court, had an occasion to consider this provision in Muiruri v Rep. [1973] E.A.86. In that case Trevelyan, J. was of the opinion that the provision did not only prohibit double punishment, but also double conviction. In other words where a person has been convicted and H sentenced on two or more offences all of which arise from the same set of facts, an appellate court is bound to quash both conviction and sentence on the superfluous count. With respect, this view is consistent with both law and common sense. Confusing as section 48 may seemingly appear, it would amount to compounding this I
1986 TLR p154
MSUMI J
A apparent confusion if courts were to hold that the section prohibits only double punishment and tolerated double conviction. Such absurd interpretation cannot be imputed into the sober minds of our legislators.
Thus reverting to the present case, it was wrong for the trial Court to convict and sentence the appellant on both forgery B and fraudulent false accounting. In fact I have been unable to think of any situation in which a person may conjunctively be charged with forgery and

fraudulent false accounting. Just as it is not proper to charge a person conjunctively with obtaining by false pretences and cheating; or receiving stolen property and being found in possession of property C suspected to have been stolen, the same applies to forgery and fraudulent false accounting. The common practice in such situation is to charge the accused in alternative counts. Of course once accused has been convicted on either of the alternative count, no finding should be made on the remaining one. D

It is obvious that in this case the convictions and sentences on the forgery and fraudulent false accounting counts cannot legally coexist with each other; either forgery or fraudulent false accounting has to be quashed. The question then is which one is to give way to the other. It appears that the normal practice is to uphold conviction and sentence on the E graver count. For the following two reasons I am of the opinion that fraudulent false accounting is more serious than forgery. Firstly, whereas the maximum penalty for forgery is imprisonment for seven years, it is fourteen years in the case of fraudulent false accounting. And secondly to constitute fraudulent false accounting, it must be proved, among other F things, that the perpetrator did the alleged offensive act with intent to defraud; whereas in forgery an intent to deceive is enough. These two terms i.e. an intent to defraud and an intent to deceive have different meaning; the former importing G graver criminal sentiment than the latter. Thus in Re London and Globe Finance Corporation [1903] 1 Ch.728, Buckley, J., defined these terms as:

To deceive is, I apprehend, to induce a man to believe that a thing is true which is false, and which the person practicing the deceit H knows and believes to be false. To defraud is to deprive by deceit: it is by deceit to induce a man to act to his own injury. More tersely it may be put, that to deceive is by falsehood to induce a state of mind; to defraud is by deceit to induce a course of action. I

A Hence guided by the general principle that the more serious offence outlives the lesser one, it follows that in this case the 22 counts of fraudulent false accounting must be sustained at the expense of the forgery counts.

Except for the last count, the evidence in support of the remaining 22 counts of stealing by Public Servant is grave and B weighty. The pattern of the appellant's device in all of them is consistent. On various occasions, appellant collected some money from customers and issued them with official cash receipts. But on each occasion he accounted for, and hence banked, less amount than what he had actually collected. He failed to account for the differences of which he was C charged with stealing. The allegation has been supported by the relevant collectors cash receipts, revenue collectors cash book folios, Government Paying in Slips and some "source documents," namely Sales Tax Entries and Import Duty Entries. But it is different with count 67.

D The allegation in this count is that between 29th day of May, 1979 and 24th day of September, 1979 appellant is alleged to have stolen a total sum of Shs.18,404/25 the property of the Government. The only evidence available in support of this allegation is that of one Simon Mukoma (PW14). It has transpired in his evidence that he is employed by E Customs

Department and at that time holding the post of Senior Accountant and stationed at the head office in Dar es Salaam. Consequent to the report which led to this case, the witness came to Mtwara and audited the books of account which were being maintained by the appellant. He specifically checked the period from 25/5/79 to 24/9/79. After F totalling all the collections on one side and the amount of money which was either banked by the appellant or by the customers themselves, plus cash and cheques found inpossession, the witness found out that Shs.18,404/25 had not been accounted for. This is the sum of money which appellant is alleged to have stolen. But apart from showing that there was G such a shortage of shs.18,404/25, there is no evidence whatsoever which suggests that this amount was fraudulently converted by the appellant. In a charge of stealing, like the present one, it is not enough for the prosecution just to prove general shortage. All the four customs officials who gave evidence on this count viz. Mathew Kihio (PW1), Analius Mpili H (PW2), Nicetus Mrema (PW4) and Simon Mukoma (PW14) complained that the appellant's books of account were not kept clean and up to date. For example some of the collections were not entered in the Revenue Cash Collectors I book. When on 24/8/79 appellant was ordered to hand over all the

A money he had, he was found with about Shs.9,000/= cash and cheques. But four days later i.e. on 28/79 when PW2 checked him farther, a total of Shs.1,020,615/= both in cash and cheques were recovered from him. There could have been no clearer evidence than this to confirm that appellant's books were really in shambles. In such situation it is likely that the alleged shortage of Shs.18,404/25 might have been more apparent than real. In any case, it is hard to say with B any amount of certainty that appellant stole this sum; if anything I think it is just a shortage arising out of unsatisfactory manner in which appellant maintained his accounts.

C Bearing in mind that the total amount of money alleged to have been stolen is well over 60,000/=, as a whole I think the sentences imposed are but extremely fair. The substantive jail term of six years is well merited in the circumstances of the case. But after sentencing the appellant to the various terms of imprisonment which ranged from one year to the maximum of six years, the learned trial magistrate made the following order: D

Order:

The Republic to recover loss of money from the accused through a Civil Suit". E

Judging from the ranges of jail terms imposed on the 23 counts of stealing by public servant one is left with no doubt that the learned trial magistrate was aware that he was dealing with a case which fell under the Minimum Sentences Act. It is F thus surprising that the clear provision of section 7 of the Act escaped the magistrate's mind. The learned trial magistrate ought to have known that under the Minimum Sentences Act it was mandatory for him to order the appellant compensate the Government the total sums of money which he had stolen - see Republic v Ruth Mgitu [1975] LRT G n.14. Hence his order which purported to advise the Government to institute civil proceedings in order to cover this money is glaringly illegal. It cannot be sustained. Excluding count 67, the total amount of money which appellant stole is

shs.60,128/50. Since this money belongs to a specified authority as defined under the Minimum Sentences Act, H compensation order for the same is but mandatory.
In the final analysis therefore, appeal on all the 22 counts of forgery and count number 67 of stealing by public servant is allowed and thus convictions and sentences on all of them are quashed. On the other hand appeal on all the 22 counts of I fraudulent false accounting and the remaining 22 counts of stealing by public servant
1986 TLR p157
A is dismissed and thus appellant is to serve the substantive jail term of six years. The order advising the complainant to resort to civil proceedings in order to recover the money stolen is set aside and instead it is hereby ordered that appellant to compensate the Government of United Republic of Tanzania a total of Shs 60,128/50 being the amount of money which he had embezzled. B
Order accordingly
1986 TLR p157
D
[zRPz]THE NATIONAL INSURANCE CORPORATION AND ANOTHER v SEKULU CONSTRUCTION COMPANY 1986 TLR 157 (CA)

Court Court of Appeal of Tanzania
Judge Mustafa JJA, Makame JJA, Kisanga JJA

24th March, 1986.
CIVIL APPEAL 31 OF 1984
Flynote
E Civil Practice and Procedure - Pleadings - Counterclaim -Counterclaim to a counterclaim - Whether a creature known to civil proceedings and pleading in Tanzania.
F Civil Practice and Procedure - Pleadings - Trial judge entertaining issues outside those contained in the pleading - Judgment and decree confined to pleading as confined in the plaint, the written statement of defence, the counterclaim and the reply thereto - Judgment and decree in variance with the evidence led - What appeal court to do.
G Civil Practice and Procedure - Decree - Execution of - Variance between the decree as drawn and the figures contained in the application for execution of the decree - Garnishee order for the decretal sum as reflected in the application for execution obtained - What appeal court to do.
-Headnote
H The pleading in this action included a "counterclaim" to a counterclaim. The "counterclaim" to the counterclaim in effect raised a distinct cause of action based on contract. In the hearing of the suit the trial judge entertained issues raised in the "counterclaim" to the counterclaim but his judgment was confined to issues other than those raised in the I "counterclaim" to the counterclaim.

1986 TLR p158

A Held: (i) A counterclaim to a counterclaim is a creature unknown to our civil proceedings and pleading;

(ii) the whole trial is null and void because of the fundamental divergence between the improper form of pleading and the evidence adduced at the trial, and that between what was tried and what was finally decreed, and between the B sum decreed as due and the sum allowed in execution proceedings.

Case Information

Order accordingly.

C No case referred to.

Y. Mchora, for the respondent

[zJDz]Judgment

Mustafa, J.: The action in the High Court commenced with a simple claim. Sekulu Construction Co. Ltd. (the D respondent herein) filed a plaint against one Fubile and the National Insurance Corporation (the appellants herein) claiming that the appellants had unlawfully converted to their own use a concrete mixer and a vibrator machine, the property of the respondent, and claimed general and special damages for such wrong. The respondent prayed for (1) E general damages (ii) special damages amounting to shs.260,820/= (iii) costs of the suit (iv) interest at 9% from date of suit to date of payment (v) a declaration that the respondent is the owner of the said machines. The appellants in their written F statement of defence denied unlawful conversion of the said machines and asserted that they had the right to use them in terms of a contract made between the first appellant and the respondent. The first appellant filed a counterclaim with the statement of defence, and in the counterclaim alleged delay and defective work by the respondent in the construction of a G building in terms of a building contract made between the respondent and the first appellant and claiming from the respondent as a consequence of such breach of contract a sum of shs.722,070.30.

The respondent replied to the statement of defence denying the appellant's right to use the machines, together with a H defence to the counterclaim denying negligence or delay on its part and alleged that it worked properly and with due diligence. The respondent also called in aid an arbitration clause contained in the building contract and demanded that the dispute be referred to arbitration.

Then followed, in the same document, a most unusual claim I

1986 TLR p159

MUSTAFA J

A - headed "counterclaim to second defendant's (i.e. first appellant) counterclaim".

The respondent in this so called counterclaim to a counterclaim alleged that the first appellant had wilfully and unlawfully breached the building contract and claimed from the appellants:

(a) a sum exceeding shs.898,000/= for general damages B

(b) costs of this suit

(c) interest on above at 12% from date of counterclaim until final payment.

Apparently at that stage the pleading ended.

C It will be noticed at once that there is no such thing as a counterclaim to a counterclaim. Such a creature is unknown to our civil proceedings and pleading. We refer to the provisions of Order 8 in the Civil Procedure Code which deal with written statements, set offs and counterclaims.

D As English common law developed, in civil pleadings, briefly speaking, an action begins with a statement of claim, or what we call a plaint, then a written defence is filed, to which a reply is made. In the written defence, a counterclaim can be included, which can be rebutted in the defence filed with the reply. Thereafter, until the court gives permission, no other pleading can be filed. Further pleading may include a rejoinder and then the old ones of surrejoinder, rebutter and E surrebutter, the last three being now perhaps out of use.

In any event there can only be one counterclaim, which in fact is a cross suit, in an action filed. There cannot be two. In F the circumstances the suit in the High Court which resulted in the appeal before us, became very confused, both in its proceedings and in its final decision.

To us it is clear that the original claim was confined to a claim for damages for wrongful use of the respondent's two G pieces of machinery by the appellants. The appellants denied any wrongful use, and counterclaimed for damages for delay and negligent work arising from a building contract. All the respondent could do was to file a defence to the counterclaim denying such allegations: which in fact the respondent did.

H If at that stage the respondent had wanted to sue the appellants for damages for alleged breach of the building contract, the respondent should have applied for leave to amend its plaint and expand it to include such allegations and claims. Or the respondent could perhaps also have filed an action on the building contract alleging breach by the I appellants, and consolidate the two suits,

1986 TLR p160

MUSTAFA J

A assuming the matters in dispute centred on the building contract. But the respondent could not have proceeded in the way he did, by filing a counterclaim to a counterclaim. He was in fact filing two distinct suits based on two separate causes of action, in the first one the respondent was merely suing for damages for wrongful use of his two pieces of B machines, and in the second the respondent was suing for damages for breach of a building contract.

We will examine briefly what happened after the pleading were closed. Three agreed issues were framed:

C 1. Did the 1st defendant convert the concreted mixer and vibrator of the plaintiff in persue (sic) of the contract?

2. Did any part suffer any damages after the termination of the contract.

3. Depending on answer to issue No. 2 - which party was at fault? D

In the course of the trial, and in view of the issues framed, it seems that in a claim for damages for wrongful use of 2 pieces of machinery, a claim for breach of a building contract was adjudicated upon, by a side wind, as it were. There E were averments and counter-averments of who was in breach, whether the appellants were right in determining the contract owing to delay and bad workmanship on the part of the respondent and so on and so forth. The trial

judge was obviously confused from the way the trial went, perhaps in view of the state of the pleading. In the course of his judgment F , the judge stated inter alia:

After the termination of the contract, the technical officer (D.W.1) requested the plaintiff to present to the second defendants their claims and the plaintiffs duly complied with this advice and they demanded to be paid Shs. 903,860/= excluding the charges of G hiring machinery such as vibrator and concrete mixer the subject matters of this suit ... (underlining supplied)

H Even at the stage of writing the judgment the judge was of the view that the subject matter of the suit was the alleged wrongful use of the 2 pieces of machinery. Obviously, if that were so, the evidence adduced concerning the alleged breaches of the building contract were really not relevant. At another stage in the judgment the judge stated: I

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MUSTAFA J

A The seizure of the machines and the building materials, was, therefore, wrongful and the defendants are liable to pay for damages as prayed and it is so ordered.

And finally towards the end of his judgment, the judge stated: B

The second defendant, therefore, cannot be heard counterclaiming that he spent a lot of money well over Shs. 1 million to complete the building ... Accordingly the counterclaim lodged by the defendants is hereby dismissed with costs. C

Because of the aforesaid, I enter judgment for the plaintiffs as prayed plus costs and interest.

In the evidence adduced at the trial, a number of issues were canvassed, issues not mentioned in the pleading nor specifically referred to in the agreed issues framed. For instance such issues included whether the agreed period for D completion of the building as contained in the building contract was extended by certain acts of the first appellant and what such extended period should be. It appeared that the issue of extension became one of the main bones of E contention between the parties, as it allegedly affected the validity or otherwise of the termination of the contract by the appellants.

In any event the judge in his judgment merely dismissed the counterclaim of the appellants with costs and entered judgment for the respondent as prayed with costs. He did not in fact finally decide on the other matters in controversy F relating to the building contract although he made certain observations in connection with some of them.

The decree as drawn up was consistent with and reflected the judgment and order of the judge. The decree reads: G

DAR ES SALAAM

CIVIL CASE NO. 140 OF 1978

H SEKULU CONSTRUCTION CO. (T) LTD. ... PLAINTIFF

Versus

1. M. S. FUBILE 2. NATIONAL INSURANCE CORPORATION (DEFENDANTS) I

1986 TLR p162

A MUSTAFA J

D E C R E E

The plaintiff prays judgment and decree against the defendants jointly and severally for:

B (i) General damages;

(ii) Special damages amounting to shs. 260,820/=

(iii) Costs of this suit;

(iv) Interest on (i), (ii), (iii) above at 9% p.a. from the date of filing this suit until final payment and delivery.

C (v) A declaration that the plaintiff is the owner of the said machines.

(vi) Any other relief that this court might deem fit to grant.

This case coming on this day for final disposal before Hon.Mtenga, Judge in court in the presence of Mchora Esq., Advocate for the D plaintiff and Musati Esq., Advocate for the defendants.

E IT IS HEREBY ORDERED AND DECREE THAT:

There is no evidence to the effect that this new contractor spent any money in buying additional building materials. The second defendant therefore can not be heard counter claiming that he spent a lot of money well over shs. 1,000,000/= to complete the F building by paying to this second contractor. Accordingly the counter claim lodged by the defendants is hereby dismissed with costs.

Because of the aforesaid judgment is entered for the plaintiff as prayed plus costs and interest. G

"BY THE COURT"

Given under my hand and the seal of the Court this 16th day of June, 1983.

"REGISTRAR" H

It will thus be seen that the decree in favour of the respondent was only for shs. 260,820/= special damages, plus interest and I costs, and a declaration that the respondent is the owner of the said pieces of machinery, in terms of the prayer as contained in the plaint filed

1986 TLR p163

MUSTAFA J

A by the respondent. The appellant's counterclaim was dismissed with costs. There was no sum given for general damages awarded, and the inclusion of the item, general damages, was mere surplusage.

However in the application for execution of the decree dated 5.7.82 (the decree was extracted on 16.6.83) the sum shown as owing for principal was Shs.3,353,983.00. Interest was charged at 10% p.a. from 12.5.77 to 16.6.83 and B amounted to Shs.335,398.30 making a total sum of Shs.3,689,381.30. There was another sum of 2,041,426.10 for interest at 9% from 12.5.77 to 16.6.83. Costs were taxed at 91,037.50, making a total decretal sum of 5,821,844.90.

The application for execution was drawn up and signed by Mr. Mchora, Advocate for the respondent. C

It is crystal clear that the figures shown in the application for execution of the decree have not the slightest connection with the decree as drawn and with the judgment given. Mr. Mchora before us was unable to explain how the figures were arrived at. It is astoishing why there were

two sets of interest charged, nor why interest was at 10% on one such amount. D The sums set down would seem to have been the figments of somebody's imagination.

To make matters worse Mr. Mchora stated from the Bar before us that both the Registrar of the High Court and the trial judge had seen and approved the figures in his application for execution. If that were true, we can only say that we find E the whole exercise inconceivable and beyond our comprehension. We thus have a strange state of affairs as revealed in the appeal. The pleading were in a form unknown to our civil proceedings, and were confused and confusing. At the trial F a number of issues were canvassed and evidence was given on them. Some such issues were related to matters vaguely raised in the so-called "counterclaim to a counterclaim". The trial judge in the course of his judgment made remarks and observations on some of these matters raised in the "counterclaim to the counterclaim", but made no final G decisions on them. The judge restricted his final finding to the prayer as contained in the plaint and to the counterclaim by the appellant. It seems to us that the judge in effect, in his judgment and decree, only finally dealt with the pleadings as contained in the plaint, the written statement of defence, the counterclaim and the reply thereto. But the judge did deal H copiously with other issues outside those contained in the pleading ending with the reply in the body of his judgment. In fact the judgment and decree, in a manner of speaking, was at variance with the evidence led and the case as conducted I at the trial as the trial judge did not make any finding on issues on which he

A had adjudicated. That is one unsatisfactory feature.

Then there is the variance between the decree as drawn and the figures contained in the application for execution of the decree. We understand that a garnishee order for the decretal sum as reflected in the application for execution was obtained.

B We had considered whether we could salvage this matter by dealing in this appeal only with the effective part of the proceedings, i.e. the judgment and decree as drawn and the evidence which concerned the matters contained in the pleading ending with the respondents reply and defence to the appellant's counterclaim. Such a step would necessitate the reconciliation of the decretal sum in the execution application with that as reflected in the decree. Such a C reconciliation seems impossible. And in any event, such a course may prejudice one or both the parties in respect of the other substantial matters in controversy in connection with the building contract, matters which the trial judge had heard D evidence on and adjudicated upon, but on some of which he had made no final decision.

We find ourselves in a quandary in this extraordinary and strange situation. We have decided that the only course open to us is to declare the whole trial null and void because of the fundamental divergence between the improper form of E pleading and the evidence adduced at the trial, and that between what was tried and what was finally decreed, and between the sum decreed as due and the sum allowed in execution proceedings.

F In the circumstances we allow the appeal, with no order as to costs. We quash and set aside the judgment and decree of the High Court, and declare the trial a nullity. We also declare,

should the parties hereto desire to proceed to law in respect of the matters in controversy between them, that the period between 11th October, 1978, and the date of the G filing of the plaint to the date of this judgment be excluded for purposes of calculation of the period of limitation of actions.
Appeal allowed H
1986 TLR p165
A
[zRPz]REPUBLIC v EDWARD GIRIKI 1986 TLR 165 (HC)

Court High Court of Tanzania - Mtwara
Judge Rubama J

5th July, 1983.
CRIMINAL REVISION 1 OF 1982
Flynote
B Criminal Practice and Procedure - Sentencing - First offender - Aged 18 - Sentenced to imprisonment without fine option - Improper
-Headnote
On a plea of guilty to selling goods above the prescribed maximum price the accused, aged 18 years, was convicted and C sentenced to three months imprisonment without a fine option, though a first offender.
Held: The accused should have been given the opportunity of paying fine. D
Case Information
Order accordingly.
No case referred to.
[zJDz]Judgment
E Rubama, J. :On a plea of guilty to selling goods above the prescribed maximum price c/ss 20 and 26 of the Regulation of Prices Act, 1973, Edward Giriki was convicted and sentenced to three months imprisonment.
F The accused was a first offender, young (18 years) and had readily pleaded guilty to the offence he stood charged with. He had sold two kilos of meat at above the prescribed price. He should have been given the opportunity of paying fine. The trial magistrate in not fining the accused had alluded to the fact that the offence was prevalent and serious and G further that those who get convicted of it readily paid fines. They should not be allowed to get away with it - they must feel the pinch by going to prison. I do not find much merit in the argument. If the fine was felt inadequate for the offence, the National Assembly would have changed the law and make the imposition of prison sentence on those found guilty mandatory. In cases where the courts have a discretion to impose a fine, then worthy cases must be dealt with H accordingly. There is no merit in exposing young ones, such as the accused, to hard core criminals.

The fact that fines are paid when imposed is not by itself reason to impose a prison sentence. It does not stand to reason I to argue that people do not feel the pinch when they pay fines. They
1986 TLR p166
A pay because they want to avoid going to Prisons and this is a different thing from saying that they pay without difficulties. It all depends on the fine; and here the court must be careful not to impose a fine that would really make it unpayable. The purpose of the sentence must be borne in mind. History of sentencing has clearly demonstrated that draconian sentences do not by themselves achieve much. The present tendency of businessmen overpricing has much B deeper causes; one of which is market mechanism - the outcome of the law of demand and supply; courts must not just over react. It must be judicious and see what it needs to achieve. In imprisoning the accused in the case under review, I C see no reformative or deterrent elements in the sentence. It is too short for achieving either of the lofty objectives. As I point out above, the appropriate sentence would have been a fine calculated to meet the case. Granted that the offence was prevalent but the accused was only caught selling two kilos of meat above the prescribed price. The trial magistrate D was not told what was the prescribed maximum either, for all that, the overpricing may not have been much. I do not say this made it less of an offence. No, but it certainly should have been a factor when determining the sentence. I would have revised the sentenceon the lines intimated above if it were not for the fact that the accused had been sentenced on E 5/1/82 and has thus long finished serving the sentence. The proceedings are closed.
Order accordingly F
1986 TLR p166
G
[zRPz]HUSSEIN IDD AND ANOTHER v REPUBLIC 1986 TLR 166 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Mustafa JJA, Makame JJA, Kisanga, JJA

23rd July, 1985.
CRIMINAL APPEAL NO. 4 OF 1985
Flynote
H Evidence - Judge's failure to consider defence evidence when dealing with prosecution evidence - Judge arriving at the conclusion without considering defence evidence - Misdirection.
-Headnote
The first appellant together with another person were convicted of murder. The trial court dealt with the prosecution evidence implicating the first appellant and reached the conclusion without considering the defence evidence. I
1986 TLR p167
MUSTAFA JA

A Held: It was a serious misdirection on the part of the trial judge to deal with the prosecution evidence on its own and arrive at the conclusion that it was true and credible without considering the defence evidence.

Case Information

B Order accordingly.

No case referred to.

[zJDz]Judgment

Mustafa, J.A.: The deceased, Godfrey Enock, was found dead, and part of his body burnt. According to medical evidence, the deceased died of traumatic injuries, resulting from fractured ribs and skull, and the C secondary cause of death was due to burning. Three persons were charged with his murder. One was acquitted and two persons, appellant Elibariki and appellant Hussein Idd were convicted of the murder of the deceased. Both the appellants are appealing D against their convictions. We will refer to appellant Eribariki as Accused 1, and appellant Hussein as Accused 2 in the course of this judgment.

We will deal with Accused 1 first. The evidence against him was given by P.W.3 Jared, P.W.4 Jubilate and P.W.5 Verdiana. E

According to P.W.3, on the material day, i.e. 25.2.83 at about 11.00 a.m. the deceased, a tractor driver, was driving a tractor and came to P.W.3's father's place at Boma Ng'ombe. The tractor belonged to "Mwangi", presumably Shangali. Bricks belonging to Accused 2 were loaded on to the tractor, and P.W.3 helped to load the bricks. Accused 2 F was there also. The tractor left to off load the bricks at Accused 2's place. While off-loading the bricks P.W.3 saw Accused 1 arriving there. Accused 1 allegedly asked the driver, the deceased, to go and help Accused 1 pull his tractor. The driver left with Accused 1 and they went towards Rundugai, with Accused 2 also on board. G

P.W.5, also, on that same morning, saw the deceased and his tractor, on her way to the market. She saw the deceased driver and Accused 2 on the tractor and Accused 1 standing by its side. P.W.4 testified and stated that at about 12.00 H noon when he was on some business around Rundugai forest he saw a tractor coming from behind. He recognised the tractor, which belonged to Mr. Shangali. The tractor passed him, and he saw Accused 1 driving it, and Accused 2, and I another person who was acquitted, also on it. P.W.4 stated he knew them very well. He also saw Accused 2 and the other person sitting on another person who had a rope around his

A neck. P.W. 4 thought that, according to Masai custom, Accused 1 was going to throw the dead body away in the open. The following day, P.W.4 heard that Shangali's tractor and the driver were missing, and 3 days later he came to know that the missing tractor and the body of the dead driver were found. However P.W.4 did not make a report to the B Police until 10.3.81 of what he alleged he had witnessed.

Accused 1 put up a defence of alibi. He stated he was not on that day anywhere near Shangali's tractor. He went to Abisangai farm at Rundugai to plough Abisangai's 7 acres with Accused 1's

tractor which was driven by Accused 1's C driver. He was there from morning until evening and was paid shs.1,400/= for the hire of his tractor.
Abisanga, who testified as D.W.1, fully corroborated the evidence of Accused 1.
D Mr. Mwale for Accused 1 submitted that the trial judge erred in allowing P.W.3 to testify without a voire dire. P.W.3 was marked down as 14 years old when he testified, and the judge swore him without a voire dire. In fact it transpired, in the course of P.W.3's evidence, that he was in fact 16 years of age, which means P.W.3 was not at the time he E testified, a child, of tender years. We are satisfied that no prejudice of any kind occurred, and Mr. Mwale's complaint on this point is without merit.
The judge found P.W.3's evidence credible. However he found P.W.3's identification of Accused 1 not reliable, as P.W.3 identified accused 1 only as a Masai. There was no identification parade. Similarly the judge found P.W.5's F identification of Accused 1 unreliable. However he found that PW.4 knew Accused 1 and Accused 2 in Shangali's tractor later at the Rundugai area. The judge found the evidence of P.W.4 highly suspicious, and was prepared to act on it only if P.W.4's evidence was corroborated. It seems that the judge held that the unsatisfactory identification by P.W.3, G and perhaps also P.W.5, corroboration of P.W.4's and perhaps also P.W.5, corroboration of P.W.4's evidence of having seen Accused 1 and Accused 2 on the tractor at the Rundugai area. H
However the judge dealt with the defence of alibi as follows:

P.W.3's evidence thus corroborates P.W.4's evidence that the 1st and 2nd accused were in Charles Shangali's tractor just about one hour after the tractor had been driven off by the accused Hussein from where P.W.3 helped off load bricks from the tractor I trailer. On the basis of this corroborative

A evidence I find that the 1st accused Elibariki and the 2nd accused Hussein Iddi had Charles Shangali's tractor in Rundugai area on 25th February, 1981 around 11.00 a.m. as testified by P.W.4. In view of this finding, it means that I reject the 1st accused's alibi although it is supported by D.W.1. The alibi is a well rehearsed lie. B
It seems clear to us that the judge dealt with the prosecution evidence on its own and arrived at the conclusion that it was true and credible and as a result he rejected the alibi put forward as a deliberate lie. In our view this is a serious misdirection. The judge should have dealt with the prosecution and defence evidence and after analysing such evidence, C the judge should then reach a conclusion. Here Accused 1 was deprived of having his defence properly considered by the judge. In the circumstances we think it unsafe to let the conviction of Accused 1 stand. D
As regards Accused 2, the evidence against him was given by P.W.2 Abdulla, P.W.3, P.W.4, and P.W.5. All these witnesses
knew Accused 2 well and there could not be any question of doubt about Accused 2's identity. The judge believed the evidence of P.W.3, and although P.W.4 was found to be rather unreliable, the evidence of P.W.3 corroborated the E evidence of P.W.4. Accused 2 was seen going away in Shangali's tractor by P.W.3, and P.W.4 saw him on the tractor at Rundugai.

P.W.5 also saw Accused 2 on the material morning on Shangali's tractor. P.W.2 heard Accused 2 asking the deceased driver to return to Accused 2 after the deceased driver had dropped the grass cutters travelling on the F tractor.
Accused 2 also put forward an alibi. He denied he was on Shangali's tractor at all. He called a witness Juma D.W.3. However D.W.3 could only supply a partial alibi which left a gap, which did not prevent Accused 2 from committing the G offence, if the prosecution witnesses were believed. We are satisfied that the conviction of Accused 2 was justified, as he failed to explain what happened after he was seen on Shangali's tractor going towards Rundugai, after which the deceased was found dead, obviously murdered. The circumstances pointed inevitably to Accused 2 as being the one or H one of those who had killed the deceased.
In the result we allow the appeal of Accused 1 Elibariki, quash the conviction, set aside the sentence of death, and order that he be released forthwith unless otherwise lawfully detained. We dismiss the appeal of Accused 2 Hussein Iddi. I
Order accordingly.
1986 TLR p170
A
[zRPz]KATABE KACHOCHOBA v REPUBLIC 1986 TLR 170 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Mustafa JJA, Makame JJA, Kisanga JJA

18th June, 1986.
CRIMINAL APPEAL 78 of 1985
Flynote
B Evidence - Circumstantial - Layman's view that remains found were human remains - Evidence insufficient.
-Headnote
The appellant was convicted of murder on purely circumstantial evidence. The appellant was employed by one Ali C Malela to gather honey in the forest. There was evidence that in August, 1980 the appellant went with Ali Malela into the forest to collect honey. Thereafter Ali Malela was not seen. A search which was mounted discovered burnt remains which were thought to be those of Ali Malela. No scientific test was carried out to establish that the remains were those D of Ali Malela. The trial Court convicted the appellant because he was the last person to be seen with the deceased and also that he had some of the deceased's properties.
E Held: (i) We are not prepared to accept a layman's view that the kidney and heart and part of the skull were human remains;
(ii) the Republic had not proved that the remains found were human remains and that they were the remains of Ali Malela.
Case Information
F Appeal allowed.

No case referred to.

[zJDz]Judgment

Mustafa, J.A. : The appellant was convicted of murder on purely circumstantial evidence. The G appellant was employed by one Ali Malela to gather honey in a forest. There was evidence that in August, 1980 the appellant went with Ali Malela into the forest to collect honey.

Sometime later, in early September, 1980, the appellant was found in a nearby village not far from the forest selling H plastic buckets of the type used by Ali Malela to collect honey. When the appellant was found by P.W.3, a relative of Ali Malela, the appellant was wearing the clothes belonging to Ali Malela. Ali Malela could not be found, despite a search, and it was assumed by the relatives of Ali Malela that Ali Malela had died or was killed. I

The appellant had told P.W.3 and others that when he left Ali

A Malela, Ali Malela was going in direction of his village Kanoge.

The appellant stated that he had exchanged his old clothes with the clothes of Ali Malela. A search was carried out in the forest, and at a spot in the opposite direction of the village Kanoge, some bone remains were found. It was alleged that the remains were found some 3 or 4 miles from the site of the camp where the appellant and Ali Malela had stayed to collect honey. B

The remains consisted of some pieces of burnt bones, a heart, a kidney, a part of a skull with some hair, and a piece of cloth allegedly belonging to Ali Malela. Apparently the remains were part of something which was burnt. It was also testified to by P.W.5 that on the spot there was an imprint on the ground as of a human being of about the size of Ali C Malela.

Some pieces of the burnt bones were sent to the Government Chemist by the Police for chemical analysis. The report from the Government Chemist stated that it could not be determined whether the bones were human or otherwise. D Nothing else was sent for analysis.

At the trial P.W.5 purported to produce a kidney, a heart and a part of skull with hair. No evidence was led as to who had kept these organs for over two years and where were they kept. In any event the trial judge concluded that they E were human remains, and the remains of Ali Malela.

No explanation was forthcoming as to why these organs were not sent to the Government Chemist for analysis. The facility was available, and some bones were duly sent for that purpose. F

The judge and the assessors were satisfied that Ali Malela was dead, and that the remains discovered in the forest were those of Ali Malela.

The circumstances implicating the appellant were: G

1. that he was last seen with Ali Malela when Ali Malela was alive.
2. that he was found with Ali Malela's clothes, and blanket.
3. that he was selling the plastic buckets of Ali Malela.
4. H that he had told a lie, in that he said he had left Ali Malela going in the direction of his village Kanoge, whereas Ali Malela's remains were found in the opposite direction.

The appellant denied the charge, and said nothing in defence.

In the first place, we are not satisfied that the death of Ali Malela had been conclusively proved. We can see no reason I why
1986 TLR p172
A the kidney and heart and part of the skull with hair were not sent to the Government Chemist for analysis and to discover if they were human remains.
It may well be that the heart and kidney were human remains, as found by the judge. But that evidence is not conclusive, and better and more conclusive evidence in that respect was available and for reasons which are not clear to us, was not B produced. We are not prepared to accept a layman's view that the kidney and heart and part of a skull were human remains in the circumstances. And naturally we cannot therefore conclude that those remains were without doubt those of Ali Malela, who had been killed and burnt. Even if, for the sake of argument, the remains were human and were those C of Ali Malela, there is still insufficient evidence to establish that the appellant must have killed Ali Malela and burnt his corpse. The appellant might have come across the dead body and taken off the clothes and the plastic buckets and told lies in order to suppress discovery of what he had done. Or the appellant might have stolen the articles. These D possibilities cannot be ruled out, and in fact are perhaps equally consistent with the act of killing, as alleged against the appellant.
E Taking these factors into account, we are satisfied that the Republic had not proved that the remains found were human remains, much less that they were the remains of Ali Malela.
We allow the appeal, quash the conviction and set aside the sentence of death imposed, and order that the appellant be released forthwith unless otherwise detained. F
Appeal allowed
1986 TLR p172
G
[zRPz]SUGAR DEVELOPMENT CORPORATION v CONSTRUCTION ENGINEERS AND BUILDERS LTD 1986 TLR 172 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mustafa JJA, Makame JJA, Omar JJA

H
CIVIL APPEAL 3 OF 1986
Flynote
I Contract - Building Contract - Construction of "repetition of default" - Whether repetition of a default can have exclusive reference to the date of its first occurrence.
1986 TLR p173
-Headnote
A The appellant, SUDECO, contracted with the respondents, Builders, for the latter to erect a multistorey building for SUDECO in Dar es Salaam. After proceeding with the works for sometime the respondent Builders defaulted. In terms of Clause 25(1)(b) of the Agreement the Architect served notice of default on the Builders on 7.6.82 on the ground of the B Builders'

"failure to proceed regularly and diligently with the works". On 26th January, 1983 the Architect found that such default was repeated and on 4.2.83 notice was served on the Builders terminating the contract. In April, 1983 the appellant engaged another contractor to erect the building.

C The Builders sued SUDECO for breach of contract. The matter was, in terms of the arbitration clause in the Agreement, eventually referred to an arbitrator who found in favour of SUDECO. On appeal to the High Court it was held that the notice of termination by the appellant, SUDECO, was invalid on the ground that there was no evidence that a repetition of the default had occurred within 10 days when the notice of termination was given. The High Court D reversed the decision of the arbitrator.

On further appeal to the Court of Appeal of Tanzania it was argued for the Builders that there was no evidence that the notice of termination of 4.2.83 was made within 10 days of the repetition of the default. It was not established that the E default discovered on 26th January, 1983 was repeated the first time that day.

Held: (i) a repetition of a default can have no exclusive reference to the date of its first occurrence, it is repeated every time the default occurs; F

(ii) the repetition of a default is the act of the default itself being repeated, and once the default is repeated, then notice of termination within 10 days of such occurrence complies with the provisions of clause 25(1)(b);

(iii) the notice of termination given on 4.2.83 was within 10 days of the repetition of default on 26.1.83, and that was in terms of clause 25(1)(b) of the Agreement. G

Case Information

Order accordingly. H

No case referred to.

T. L. Mkude, for the appellant

M.A. Lakha, for the respondent I

1986 TLR p174

MUSTAFA JA

[zJDz]Judgment

A Mustafa, J.A.: The appellant (Sugar Development Corporation, hereinafter called the Corporation) had entered into an agreement with the respondent (Construction Engineers and Builders Limited, hereinafter called the Builders) for the Builders to erect a multistorey building for the Corporation in Dar es Salaam. The Agreement (hereinafter called the B Agreement) was dated 19.9.80, the contractual sum was about 33.5 million shillings, the completion date was 3.1.83, the time for completion was 120 weeks, from 15.9.80 to 3.1.83. Shortly after the Builders had commenced building a variation of the Agreement was made between the Corporation and the Builders by which additional storeys were to be C added to the original building and the price was increased to about 52.7 million shillings and the completion date was extended to 3.7.84. The Agreement was on the lines of the usual Royal Institute of British Architects (R.I.B.A) form of contract.

D In terms of clause 25 (1) (b) of the Agreement the Architect served notice of default on the Builders on 7.6.82 on the ground of the Builders "failure to proceed regularly and diligently with the works". In January, 1983 the Architect found that such default was repeated and on 4.2.83 notice was served on the Builders terminating the contract. In April, 1983 E the Corporation employed another contractor to erect the Building.

The Builders filed a suit in the High Court for breach of contract, and the matter was, in terms of the arbitration clause in the Agreement, eventually referred to a single arbitrator, Mr. A.G.I. Shayo, then President, Institute of Engineers, F Tanzania, for arbitration.

The Arbitrator heard evidence and made his award. The Arbitrator found in favor of the Corporation and the Builders appealed to the High Court alleging misconduct on the part of the Arbitrator and asking for the award to be set aside. G The High Court (Mapigano, J.) held that the notice of termination by the Corporation was invalid and that the Arbitrator had misconducted himself. The judge, apart from remitting the amount claimed for compensation to the Arbitrator for a fresh hearing, in effect set aside the award. From that Ruling the Corporation has appealed to this Court. H

In his award the Arbitrator made a number of findings. The main ones were:

(1) The Builders' responsibility was limited to the scope of works as defined in the original Agreement of 19.9.80 including any I variations that were issued but did not extend to the overall

A increased scope of work. The sum involved would be Shs. 33.54 million less Shs. 8.04 million for supplies and sub-contracts, i.e. Shs.25.5 million only.

(2) The Architect's notice of default dated 7.6.82 was valid.

(3) That there was an element of negligence on the part of the Architect in dealing with applications for extension of time by the Builders. B

(4) The notice of termination of 4.2.83 issued by the Corporation to the Builders was in conformity with the Agreement and was valid.

(5) In view of the finding that the termination was valid there was no point in considering the issue of extension of time. C

(6) The Builders to compensate the Corporation as follows:

(i)	extra cost of completing works	38,384,558.45
(ii)	extra cost of consultant's fee	3,294,409.30 D
		41,678,967.75

(7) The Corporation to return to the Builders the equipment and tools in good condition, fair wear and tear excepted, on the completion of the work. E

The judge found that the Arbitrator had (1) misconstrued clause 25 (1) (b) of the Agreement, and he held that the notice of termination given by the Corporation to the Builders was bad, (2) that the Arbitrator did not adequately consider the Builders' application for extension of time which was of vital importance and (3) the amount awarded to the Corporation F was unwarranted.

He found that the Arbitrator had misconducted himself and he set aside the award and directed G

(a) The Builder's plant, equipment and tools be released forthwith to the Builders.

(b) The award concerning compensation be set aside and will be the subject of a new hearing. H

(c) The costs of the application be borne by the Corporation.

The Corporation appeals to this Court on two main grounds. Mr. Mkude for the Corporation submitted that the judge I had erred in holding first, that the Agreement had been unlawfully terminated

A and secondly that the Arbitrator did not adequately consider the question of extension of time.

On the issue of termination, the point turns on the construction of clause 25 (1) of the Agreement. It reads:

B 25. (1) If the Contractor shall make default in any one or more of the following respects, that is to say:

(a) if he without reasonable cause wholly suspends the carrying out of the Works before completion thereof, or

C (b) if he fails to proceed regularly and diligently with the Works,or

(c) if he refuses or persistently neglects to comply with a written notice from the Architect requiring him to remove defective work or improper materials or goods and by such refusal or neglect the Works are materially affected, or D

(d) if he fails to comply with the provisions of clause 17 of these Conditions,

E then the Architect may give to him a notice by registered post or recorded delivery specifying the default, and if the Contractor either shall continue such default for fourteen days after receipt of such notice or shall at any time thereafter repeat such default (whether previously repeated or not), then the Employer without prejudice to any other rights or remedies, may within ten days after such F continuance or repetition by notice registered post or recorded delivery forthwith terminate the Employment of the Contractor under this Contract, provided that such notice shall not be given unreasonably or vexatiously ... G

The Arbitrator gave detailed reasons for his finding. As regards the notice of default, he was satisfied that the default notice of 7th June, 1982 was reasonably issued, the default being that the Builders failed to proceed regularly and H diligently with the works.

The Arbitrator held that the default was repeated on 26th January, 1983 when, on a site visit, it was discovered that the labour force had dropped from 49 to 12, and there was no foreman on the site. And by a letter of 28th January, 1983, the Builders stated that building on the site had stopped. The notice of termination was given on 4.2.83, within 10 days I of the repetition of the default on

A 26th January, 1983, and 28th January, 1983.

The judge was not satisfied as to when the Builders had repeated the default, which in his view, was crucial, as the notice of termination had to be given within 10 days of the repetition of the default.

B Mr. Lakha for the Builders submitted as follows: First even if the default notice of 7.6.82 was valid, he contended that the notice of termination of 4.2.83 was not made within 10 days of the repetition of the default. He said that there could be no continuance of the default the subject of the notice of 7.6.82, as there was an interval of 8 months; and during such interval the Builders had done satisfactory work. There could only be a repetition. It was not established that the default C discovered on 26th January, 1983 was repeated the first time that day. To be a repetition Mr. Lakha contended that the default must have occurred the first time after a lapse of time. If the occurrence had happened on an earlier date it would be continuation, not a repetition. He emphasised that "continuance" and "repetition" are mutually exclusive, a D continuation cannot be a repetition.

I am not persuaded by this argument, ingenious though it is. If after a default has been established, and it has ceased or E has been remedied, a repetition of such default occurs when it takes place again. It matters not when one becomes aware of the default, whether on the first day it was repeated or on some subsequent date, so long as the default F continues. A repetition of a default can have no exclusive reference to the date of its first occurrence, it is repeated every time the default occurs. The repetition of a default is the act of the default itself being repeated, and once the default is repeated, then a notice of termination within 10 days of such occurrence complies with the provisions of clause 25 (1) (b).

Mr. Lakha also contended that there was no or no sufficient evidence of the default being repeated. The Arbitrator had G relied on two matters for his finding that the default was repeated, (1) the site visit on 26.1.83 and (2) the Builders' letter of 28.1.83. Mr. Lakha submitted that the site visit was referred to only in the final written submission to the Arbitrator made by the Corporation and was not a matter given in evidence. As regards the letter of the Builders Hdated 18.1.83 he submitted that the sentence "the project has come to a standstill", should not be taken out of its context. The Builders were complaining of the attitude and stance adopted by the Architect in respect of the work done by the Builders. I

Mr. Mkude for the Corporation referred to the large number

A of site visits made as mentioned in minutes in the record prepared for the Arbitrator. These were not in dispute and in fact he stated there was evidence adduced before the Arbitrator of such visits. The site visits, at that period, used to be about once every week or ten days. The letter of 28.1.83 clearly established that the work had come to a standstill. B

The Arbitrator was satisfied that the site visit of 26.1.83 did take place. There was certainly evidence to support his finding. He construed the letter of 28.1.83 as evidence that at that time the work on the site had stopped.

C On this point the judge stated that he was not satisfied as to when the Builders repeated the default. In my opinion if he had properly directed his mind to the Arbitrator's finding that such evidence was to be found in the site visit on D 26.1.83 when the labour force had fallen to 12 and the foreman was absent, as well as to the admission in the Builder's Letter of 28.1.83 that work had come to a standstill, I think he would have concluded that the default was repeated on 26.1.83 and 28.1.83. The default, let me repeat, was failure to proceed regularly and diligently with the works".

The notice of termination was given on 4.2.83, within 10 days of the repetition of such default in terms of Clause 25 (1) E (b) of the agreement.

On the issue of extension of time Mr. Lakha submitted that the Arbitrator had found that the Builders had applied to the Architect for extension of time for 377 days. The Arbitrator was of the view that the Builders were entitled to some at F least of those days, and that there was an element of negligence on the part of the architect in dealing with such application for extension of time. I am not at the present concerned with another extension for 254 days which relates to the extra work connected with the variation in the original Agreement. Mr. Lakha submitted that if the Builders were G granted the full extension of time applied for, it could be found that there was no undue delay by the Builders in carrying out their building work. He went into figures and time frames and sought to establish that if the Builders had obtained such full extension there would be no default. He contended that the Arbitrator ought to have decided how much extra H time was due to the Builders, so as to assess the progress of the work done, but the Arbitrator had failed to do so. He submitted that this matter of extension of time should be remitted to the Arbitrator for a fresh hearing. From Mr. Lakha's arithematical calculation he estimated that at the time the Agreement was I

A terminated about two thirds of the work in the original Agreement had been completed.

Mr. Mkude, from his arithmetical calculation, claimed that by the time the agreement was terminated, only one third of the work in the original Agreement was completed. He maintained that in any event the default was basically concerned with B the progress aspect of the work, that work had to be done "regularly and diligently". The issue of when the work was to be completed has to be viewed in the context of the progress of the work being carried out "regularly and diligently". The evidence, he contended, established that work had come to a standstill on 18.1.83. The issue of extension of time C was not of importance in the numerical context, but in the context of the concept of proceeding with the work "regularly and diligently". He admitted that there was no evidence based on quantities about the portion of work completed when the Agreement was terminated. The estimates given were based on the amounts of money paid and the balance remaining unpaid. D

On the question of extension of time the judge was of the view that it was of vital importance and deserved a "deep and careful consideration". He thought that if the Arbitrator had granted the full extension of time asked for by the Builders, E he would have dismissed the Corporation's contention that he had committed the default of failing "to proceed regularly and

diligently with the works". The judge did not hold that the claim for extension was well-founded, but he held that the F Arbitrator did not adequately consider this issue. The judge however had held that the notice of termination was bad on the ground that there was no evidence that a repetition of the default had occurred within 10 days when the notice of termination was given. He did not link this question of the extension of time directly with the issue of the validity or otherwise of the notice of termination. G

The Arbitrator dealt in great detail in his award with the extension of time issue. He dealt with it when considering the issue of extension of time proper and in connection with the issue of the validity of the notice of termination of 4.2.83. He considered the reasons for some of the extra time asked for as being due to lack of materials, and he concluded that the H "conditions which existed during the contract period as far as the availability of the said material is concerned, were not different from those that existed in 1981, when the Contractor prepared his tender bid". He went carefully into the arguments and submissions put forward by the parties, and the Arbitrator devoted several pages in his award to this I matter.

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MUSTAFA JA

A The Arbitrator took into account all the relevant factors, and in arriving at his conclusion he took note of the extension of time claimed by the Builders, the reasons advanced by the Builders for the rate of progress and so on and so forth. The Arbitrator was experienced in the matters in dispute between the parties, and he gave sound reasons for his conclusion. I can find nothing that indicated that the Arbitrator had misdirected himself or had gone wrong, and, for my B part, I am satisfied that the Arbitrator was entitled, on the evidence before him, to have reached the conclusion that despite the right of the Builders to some of the extra time he had asked for, it would not have really mattered for it was C clear that the Builders had failed to proceed regularly and diligently with the works. I do not agree with the judge when he found that the Arbitrator did not adequately consider the Builders' application for extension of time. In my view that point was adequately considered by the Arbitrator. D

I now come to the matter of the monetary award made by the Arbitrator. The judge found that the said award was unwarranted and directed that this issue be remitted to the Arbitrator for a fresh hearing. I think the judge was right. The Arbitrator had clearly erred in his assessment of the sum found due to the Corporation. He gave no clear indication as to E how he had arrived at his figure. Mr. Lakha submitted, and Mr. Mkude eventually agreed, that this matter be remitted for a fresh hearing.

In deciding this matter of the monetary award the Arbitrator should take into account the following, among other, factors: F

(1) The Arbitrator had clearly found that the Builders' responsibility was limited to about 25.5 million shillings (to the scope of works as defined in the original Agreement)

G (2) The Builders had been paid about 12.8 million shillings for work done, leaving a balance of about the same sum.

(3) The sum paid to the Builders includes some of the extra work as contained in the variation to the original Agreement.

(4) An estimate has to be made as to when the works in the original Agreement would be completed if they have not yet been completed. In this connection, it must be kept in mind that, the new contractor would be erecting on the basis of the H Agreement as varied including the extra work. Any extra time due to the Builders has to be computed and taken into account. I

(5) If there is an element of inflation in connection with the

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MUSTAFA JA

A cost of the uncompleted work in the original Agreement, the escalation due to inflation assessed at 15% as contained in page 145 of the record of appeal will be of relevance.

(6) Whether liquidated damages at Shs.6,000/= per day of delay as contained in Clause 22 of the Agreement is applicable.

B In connection with the Builders' plant, equipment and tools, the judge had ordered them to be released by the Corporation to the Builders "forthwith", i.e. on the date of his judgment, 21st September, 1985. The judge made that order probably on the ground that the termination notice was invalid. That order of the judge cannot now stand and I C would restore the order of the Arbitrator on this matter. In any event the Arbitrator will have to fix a completion date in respect of the uncompleted work involved in the original Agreement, either actual or notional. The return of such plant and equipment would be related to such a date. D

In the final analysis, I would set aside the order and ruling of Mapigano, J., except for his order that the award in respect of monetary compensation made by the Arbitrator in his Award be set aside and be the subject of a fresh hearing.

I would restore the findings of the Arbitrator that the notice of default of 7.6.82 and the notice of termination of 4.2.83 E were valid and legal. I also would restore the order of the Arbitrator that the costs of the Arbitration before him be borne by the Builders, as well as his order in respect of equipment and plant.

F In regard to the fresh hearing on the issue of the monetary award, I would order that the matter be arbitrated by the same Arbitrator in terms of Section 14 of the Arbitration Ordinance. He should file his award within 3 months of the date of the order remitting the award. The Arbitrator should take note of the factors in regard to the monetary award mentioned earlier in this judgment. G

In the result in my opinion, the appellant has succeeded to the extent as above stated. I would award the appellant half the costs of this appeal. I would not certify for two advocates. I would make no order in respect of the costs in the High Court.

As the other members of the Court agree, it is so ordered. H

Order accordingly.

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A

[zRPz]HON. B.P. MRAMBA v LEONS S. NGALAI AND THE ATTORNEY GENERAL 1986 TLR 182 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Nyalali CJ, Mustafa JJA, Kisanga JJA

B
6th November, 1986.
CIVIL APPEAL 16 OF 1986
Flynote
Civil Practice and Procedure - Pleadings - Further and better particulars - Whether the further and better particulars ordered to be furnished were matters of fact or evidence.
-Headnote
C This matter was before the Court of Appeal for a decision on a preliminary matter. At the stage of pleadings in an election petition between the appellant and the respondent the High Court ordered that further and better particulars be furnished relating to dates and places of alleged illegal campaigns, the precise character of such campaigns and the alleged D other enticements and corrupt practices. It was argued in the Court of Appeal whether or not such further and better particulars were matters of fact or of evidence.
E Held: (i) The further and better particulars ordered by the High Court were not matters of evidence but matters of fact;
(ii) the particulars were necessary to substantiate the relevant allegations made in the petition.
Case Information
F Order accordingly.
Cases referred to:
1. Humphries & Co. v The Taylor Drug Co; 39 Ch.D. 693.
2. Zierenberg v Labouchere [1893] 2Q.B. 183.
G 3. Marriot v Chamberlain 17 QBD 154.
M.A. Lakha & Maruma, for the appellant
Mkate, for the respondent
Chenge, for the Attorney-General
[zJDz]Judgment
H Nyalali, C. J. : This is an appeal in a preliminary matter concerning an election petition pending in the High Court at Arusha in Miscellaneous Civil Cause No. 89 of 1985. The Appellant is one Honourable B.P. Mramba, who is the first Respondent in the petition pending in the High Court. There are two respondents in this appeal, I that is, one Leons S. Ngalai, who is
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NYALALI CJ, MUSTAFA JJA, KISANGA JJA
A the Petitioner in the case in the High Court, and the Attorney-General, who is joined as the Second Respondent in the High Court. Before the petition came up for hearing in the High Court, the first respondent to the petition, who is the present appellant, applied for the petition to be "struck out as scandalous or tending to prejudice, embarrass or delay the fair trial of the

petition", and asked for costs for the application. The learned trial judge, the late Maganga, J., in his ruling B agreed to strike out three grounds in the petition as he was of the view that two of the grounds were repetitive of other grounds and the third was superfluous. Furthermore he directed under the provisions of Rule 27(2) of the Elections C (Election Petition) Rules, 1971 read together with Order 6 Rule 4 of the Civil Procedure Code, 1966 further and better particulars to be given by the petitioner within 14 days. Finally, he ordered each party to bear his costs. The petitioner complied with the Court's directions. The first respondent to the petition was however not fully satisfied with the D outcome of his application, and he sought and obtained leave of the High Court to appeal to this Court under the provisions of Section 4(1)(c) of the Appellate Jurisdiction Act, 1979.

The appellant is represented by Mr. Lakha and Maruma learned Advocates, whereas Mr. Mkatte, learned Advocate E from Mkono & Company, Advocates, has been briefed to represent the first respondent in the appeal, apparently on behalf of Shayo Jonathan & Company, Advocates, Mr. Chenge, learned Principal State Attorney, appeared for the Attorney-General, who is the second respondent in this appeal. F

The petition originally filed in the High Court contains seven grounds of complaint enumerated in paragraphs 4(1) to 4(7) of the petition. These read as follows:

4. The Petitioner seeks to nullify the election of the first respondent as the Member of Parliament for the Rombo Constituency on the following grounds, among others to be argued at the hearing: G

(1) That the first respondent by himself and by agents conducted secret campaigns before and during the period designated for the official campaign or purposes of the elections; H

(2) That influential clergymen and priests within the Constituency campaigned for the first respondent before and during the official campaign in Churches; I

A (3) That the Petitioner was not accorded a fair and equal opportunity on expounding on the party Manifesto at meetings held in the Constituency for purposes of the campaign;

(4) That the official campaign meetings were disrupted by supporters of the first respondent so much so that the B Petitioner could not expound the Manifesto to potential voters who attended campaign meetings;

(5) Organisers of the official campaign did not take appropriate measures to stop supporters of the first respondent from disrupting campaign meetings; C

(6) That the first respondent, before and during campaign meetings, corruptly made promises, paid money and promised other enticements to potential voters;

(7) That the first respondent committed certain acts of corruption before and during the official election campaign. D

It is grounds 4(3), 4(5) and 4(7) that were ordered struck out by the High Court as a result of the Appellant's preliminary application. With regard to grounds 4(1), 4(2) and 4(6), the court

ordered particulars to be given concerning the period E during which the alleged illegal campaigns or corrupt practices occurred. It ordered further that particulars be given concerning the location of the Churches where the illegal campaigns stated in ground 4(2) took place; and also the location where the official campaigns were disrupted as alleged in ground 4(4). F

In his Memorandum of Appeal, the appellant lists various grounds of complaint against the decision of the High Court as follows:

G 1. With regard to ground 4(1) of the Petition the learned High Court Judge erred in law in failing to order that particulars ought to have been given of:

H (a) The agents who are alleged to have conducted secret campaigns;

(b) The places where secret campaigns were carried out;

(c) The dates on which the secret campaigns were carried out during the official campaign;

I (d) The precise character of the secret campaigns of which complaint is made.

A 2. In respect of ground 4(2) of the Petition the learned High Court Judge ought to have ordered particulars to be furnished of

(a) The exact names and addresses of the clergymen;

B (b) The dates on which they conducted campaigns whether on before or during the official campaign;

(c) The precise character of the secret campaign.

3. With regard to ground 4(6) of the Petition the learned Judge erred in law in that he failed to order particulars of: C

(a) The dates on which corruption was committed;

(b) Precise character of corruption on each occasion;

(c) The exact promises that were made and to whom;

(d) The amount of money that was paid; D

(e) The other enticements promised.

4. The learned High Court Judge erred in law in holding that each party should bear its own costs.

E Mr. Mkatte, learned Advocate, has resisted this move mainly on the basis that the particulars sought in this appeal are matters of evidence and not of facts. He has further submitted that the giving of these particulars will result in the disclosure of witnesses whom the appellant could approach and interfere Fwith.

Mr. Chenge for Attorney-General informed this Court that although the Attorney-General appeared as the 2nd respondent in this appeal, he was fully supporting the stand taken by the appellant for purposes of this appeal.

G The main issue in this appeal is whether the particulars sought by the appellant ought to have been ordered by the High Court to be given in the petition.

The legal position concerning the giving of particulars of allegations made in an election petition case is stated under Order 6 Rules 4 and 5 of the Civil Procedure Code, 1966 which apply to

election petition cases by virtue of the provisions of H Rule 26 of the Elections (Election Petitions) Rules, 1971. Since Order 6 Rules 4 and 5 are exact reproductions of corresponding provisions of the Indian Civil Procedure Code, 1908, the commentaries to the Indian Code as well as the decisions by competent Indian Courts are undoubtedly of great value and assistance to us here in understanding I

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A the relevant provisions of our Civil Procedure Code. Similar values attach to English authorities, since in the final analysis, the Indian Civil Procedure Code, 1908, was an application of English law to the sub-continent of India.

Under Order 6 Rule 4 of our Civil Procedure Code, it is mandatory to state in the pleading the particulars necessary to B substantiate any allegation. Under Rule 5, further and better particulars may be ordered by the court, subject to terms, such as costs, as may appear just.

In the Commentary to the corresponding Rule 4 of Order 6 of the Indian Civil Procedure Code, 1908, in Sarkar's Civil C Procedure Code, Eigth Edition, Vol. I, it is stated, "The object of this rule is to furnish the opposite party with such particulars regarding the suit as are necessary to enable him to find out what case he has to meet. It is but right and proper that each party should have any and every particular that will enable him to know his opponent's case and D prepare himself accordingly, but he is not entitled to have any information as to the evidence by which they are intended to be proved..."

Furthermore, the Commentary cites the English case of Humphries & Co. v The Taylor Drug Co. 39 Ch. D. 693, 695 E where it was stated, "The courts have uniformly endeavoured to prevent the plaintiff, or the defendant, as the case may be, from prying into the brief of his opponent or finding out which is to be the evidence which is to be produced at the trial. On the other hand the Courts have uniformly said that the plaintiff or the defendant is entitled to be told any and F every particular which will enable him prepare his case for the trial, so that he may not be taken by surprise".

Two More English decisions, that is in the case of Zierenberg v Labourchere (1893) 2Q.B. 183: and Marriot v Chamberlain, 17 QBD.154 are cited in support of the proposition that names of witnesses have to be given if the names G constitute material facts.

Looking at these authorities, it is apparent that the basis for the rule requiring the giving of particulars necessary to substantiate allegations made in pleadings is the need to ensure a fair and expeditious trial. As stated in Halsbury's Laws H of England, 4th Edition, Vol 36, paragraph 38, "The function of particulars is to carry into operation the overriding principle that the litigation between the parties, and particularly the trial, should be conducted fairly, openly and without surprises, and incidentally to reduce costs".

I The first question which arises is whether the particulars sought are matters of evidence rather than of facts. It is clear that

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A the appellant seeks to know, firstly, the names of persons who it is alleged illegally campaigned for the appellant; secondly, the places and dates where the illegal campaigns occurred; thirdly the precise character of such illegal campaigns; fourthly, the dates, character and the amount of money involved in the corrupt practices allegedly committed B in connection with the election campaign; and finally, the specific enticements, promises and promises as alleged in the petition.

Obviously the identity of the persons allegedly involved in the illegal campaigns will have to be established by evidence adduced at the trial. Such identity therefore is not the same thing as the evidence needed to prove it, but is a fact to be C proved. The same thing can be said about the places and dates in question, the precise character of the illegal campaigns, the precise character of the alleged corrupt practices, the amount of money corruptly paid and the exact corrupt promises and other enticement allegedly promised. The finding therefore on this question must be that the particulars sought by the D appellant are not matters of evidence but matters of fact.

The next question that arises is whether these particulars are necessary to substantiate the relevant allegations made in the petition. With regard to the names of the alleged agents, Mr. Mkatte conceded that not all the appellant's agents are E implicated in the illegal campaigns. That being the position, it is only fair that the appellant be informed who among his many agents are implicated, so that he does not undergo unnecessary trouble in preparing his defence. The same can be F said about the unnamed clergymen. As to the location of the alleged illegal campaigns, it is undisputed that the entire electioneering covered a very wide area in Rombo Constituency. The petitioner does not allege that all the election campaigns were illegal. That being the position, it is only fair that the appellant be informed which of these campaigns are G the subject of the complaints and this can be done by specifying the places and dates of the illegal campaigns.

As to the exact character of the alleged illegal campaigns, this is obviously a material or necessary particular, because the H illegality is determined to a large extent by the nature of the act or conduct complained of. It is not every act or conduct which constitutes an illegal campaign. So, it is only fair that the appellant should know the exact character of the alleged illegal campaigns.

In my considered view, the reasons supporting the requirement to specify the dates, places and character of the alleged I illegal

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A campaigns, also apply to the requirement to specify the dates and character of the corrupt practices, promises and enticements mentioned in ground 4(6) of the petition.

It is clear therefore that the High Court ought to have ordered the particulars now sought by the appellant to be given. B Under section 3(2) of the Appellate Jurisdiction Act, 1979, this court has, "in addition to any other power, authority and jurisdiction conferred by this Act, ... the power, authority and jurisdiction vested in the court from which the appeal is brought". It is proper that this Court orders the particulars sought by the appellant be given in the petition

within a period C to be fixed by the court. But before doing so, there is the question of costs in the High Court.

As already mentioned, the High Court directed each party to bear his costs. The appellant is aggrieved by that decision. Mr. Lakha has submitted that an order for costs ought to have been made in the appellant's favor, since practically half of D the grounds were struck off as prayed by the appellant. With due respect to Mr. Lakha, there is a misconception on his part. One has only to recall the reasons given by Maganga, J. to realize what I mean. The learned Judge struck off grounds 4(3), 4(5) and 4(7) for being repetitive or superfluous. In other words, these grounds were sufficiently covered E in other grounds which were not struck off. Clearly the appellant did not succeed in getting anything which he had sought in his application. The appellant has no ground to complain against the order as to costs. But since he has substantially succeeded on the other matters of this appeal he shall have his costs in this Court which shall have to be F taxed.

Since my learned brothers Mustafa, J.A. and Kisanga, J.A. agree with me on the outcome of this appeal, it is hereby directed the appeal be allowed with costs and the particulars sought by the appellant be given in the petition within fourteen days from today. G

Appeal allowed.

H Kisanga, J.A. : The background to this appeal and the issue for determination have been set out in the judgment of my Lord Chief Justice which I have had the advantage of reading in draft, and so I need not repeat them here.

I agree that the names of the agents who allegedly conducted secret campaigns for the appellant are matters of fact which I ought to be disclosed at the pleadings stage so as to enable the appellant

A to know his opponent's case, and to prepare his defence accordingly. If the names of such agents are withheld and are disclosed only at the trial, this would tend to take the appellant by surprise. It might lead to, among other things, the appellant seeking adjournment in order to prepare possible defences such as alibi. That would certainly hamper a fair and expeditious trial. Mr. Mkatte's contention that disclosure of the names of such agents at the pleadings stage would B or might lead to the appellant interfering with those agents does not seem to hold much water. It would appear that if the appellant is minded to interfere with the agents as alleged, he could do so whether such agents are disclosed at the C pleadings stage or only subsequently; more so especially because the said agents are his own. In such circumstances perhaps it is best to take the view that the appellant will consider himself a person of sufficient integrity who would not allow himself to engage in that kind of thing.

D Likewise, I agree that the dates and places of the alleged illegal campaigns, the precise character of such campaigns and the alleged other enticements and corrupt promises are matters of fact which ought to have been ordered by way of further particulars. In this respect it is pertinent to note that the learned Advocate for the second respondent, the Attorney-General,

unhesitatingly conceded to this view. In these circumstances, I accordingly agree with the proposed E order by the learned Chief Justice for further particulars.
On the issue of costs, I also agree with the order, proposed by the Chief Justice and the reasons assigned thereto, that the order of the High Court that each party bears his own costs of the application should not be disturbed, but that the F appellant shall have his costs of this appeal.
Order accordingly.
G Mustafa, J.A. : I have had the opportunity of reading the judgment prepared by the Chief Justice in draft and I agree with it. I will only say a few words.
There are no precise rules concerning what particulars are to be furnished to the other party but the general principle is clear. It is that only material facts constituting a party's case, not the evidence in support thereof, are given. And if H names and dates and other matters form part of such material facts, then such particulars would be ordered. What particulars should be ordered would depend on the facts of each case. As I have said, the principle is clear, but its I application can often be quite difficult.
1986 TLr p190
A In this case I am satisfied that the particulars asked for by the appellant are necessary for the fair conduct of his case and to prevent him from being taken by surprise. I concur in the order proposed by the Chief Justice.
Order accordingly. B
1986 TLR p190
C
[zRPz]THE REPUBLIC v SEBASTIAN NDOMBA 1986 TLR 190 (HC)

Court High Court of Tanzania - Mtwara
Judge Rubama J

8th July, 1986.
CRIMINAL REVISION 24 OF 1986
Flynote
D Commercial Law - Insurance - Causing a motor vehicle to be used on a road without a certificate of insurance - Motor Vehicle Insurance Ordinance, Cap. 169, s.4(1).
Commercial Law - Transport licensing - Using a goods vehicle without transport licence - Transport Licensing Act, 1973, s.10(1)(a)(2) and (7). E
Criminal Practice and Procedure - Sentencing - Previous High Court judgment misinterpreted - Magistrate imposing sentences which do not reflect the seriousness of the offences - Accused not disqualified from holding or obtaining a driving licence as required by the law. F
-Headnote
After convicting the accused of, inter alia, causing a motor vehicle to be used on a road without a certificate of insurance and using a goods vehicle without transport licence, the trial magistrate purporting to rely on a High Court decision G imposed lenient sentences and failed to comply

with a mandatory requirement to disqualify the accused from holding or obtaining a driving licence for some period. The High Court ordered revision.

H Held: (i) While the primary duty to have a policy of insurance for motor vehicles in respect of third party lies with the owner of the motor vehicle the law makes it unlawful for anybody to use or to cause or permit any other person to use a motor vehicle on a road unless the motor vehicle has an insurance or third party insurance cover; I

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RUBAMA J

A (ii) according to s.4(1) and (2) of the Motor Vehicles Insurance Ordinance, Cap.169, the consequences of driving a motor vehicle which has no insurance cover is equally borne by the owner or anybody in control of the motor vehicle and the driver of the motor vehicle irrespective of his status;

B (iii) the import of s.10(1)(a)(2) of the Transport Licensing Act, 1973, is at all four with s.4(1) of the Motor Vehicles Insurance Ordinance, Cap. 169;

(iv) the trial magistrate grossly misdirected himself in passing lenient sentences on the basis of R. v Athumani Saidi.

Case Information

Order accordingly. C

Cases referred to:

1. R. v Athumani Saidi [1967] HCD 20.

[zJDz]Judgment

D Rubama, J.: Sebastian Ndomba was convicted of four offences: failing to fix a plate number (identification marks) c/s 14(1) and (5) of the Road Traffic Act, 1973, secondly causing a motor vehicle to be used on the road without a certificate of insurance c/s 4(1) and (2) of the Motor Vehicles Insurance Ordinance, Cap. 169, thirdly E using a goods vehicle without transport licence c/s 10(1)(a)(2) and (7) of the Transport Licensing Act, 1973 and fourthly failing to bring motor vehicle to the Police Station after being ordered to do so c/ss 87 and 113(1) and (2) of the Road Traffic Act, 1973. Fine of shs.100/= or one month imprisonment in default was imposed in respect of the first to F third counts and shs.200/= or one month imprisonment was imposed in respect of the fourth offence.

I ordered revisional proceedings for the following reasons: the imposed sentences did not reflect the seriousness of the offences and that the accused was not disqualified from holding or obtaining a driving licence for some period in G conformity with s.4(2) of the Motor Vehicles Insurance Ordinance. The trial magistrate in imposing these sentences had thought he was correctly interpreting a decision of this court. He stated: H

In the case of R v Athumani Said [1967] HCD 20 it was held that the primary duty with respect to motor vehicle rests with owner not driver. The driver should not be fined heavily. The accused is not the owner of the motor vehicle and I

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RUBAMA J

A according to this case quoted above, he should not be heavily fined as the primary duty with respect to the motor vehicle does not lie on him.

With respect the learned trial magistrate misinterpreted the case he quoted. What was stated in the quoted case was that B the "primary responsibility for obtaining a vehicle licence [rested] with the owner of the vehicle, and a fine of shs.150/= [was] excessive when applied to a mere driver." (emphasis supplied). The case did not say that the primary duty with respect to motor vehicle rested with the owner and not with the driver as the learned trial magistrate stated. True the C primary duty of maintaining a motor vehicle in good repair or for that matter, for fixing a plate number (identification marks) or for obtaining a road licence or motor vehicle insurance rests on the owner of the motor vehicle. But there are D several other duties involving a motor vehicle usage that primarily lie on the driver. To quote the obvious to highlight the point, the primary duty of driving on a public road carefully and with consideration to other road users lies with the driver and not the owner of the motor vehicle being driven.

E While accepting the fact that the primary duty for fixing a plate number for identification purposes lay with the owner of the motor vehicle, I do not subscribe to the view that a very small sentence that amounts to a no sentence be imposed on the driver of such a motor vehicle. Granted the driver may not easily notice defects in a motor vehicle when he takes it F out for a drive but he would definitely know at once that the motor vehicle he is about to drive has no identification marks. It does not need a genious to know that driving such a motor vehicle was an offence. For anybody who so arrogantly sets out to commit such an offence, the sentence to be imposed has got to reflect the abhorrence of the society G for the act done. A sentence of shs.100/= was very low.

The case of R. v Athumani Said (supra) does not have the general application that the trial magistrate had conferred to it. Even in some cases where the primary duty is on the owners of motor vehicles, statutes have come in to specify that the consequences of breaching such laid down duties are equally shared by the owners of the motor vehicles and their H drivers. I will deal with two such cases that are relevant to the case under review. The accused was fined shs.100/= or one month imprisonment in default for driving a motor vehicle without a motor vehicle insurance cover because the I

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RUBAMA J

A primary duty to buy the motor vehicle insurance lay on the owner. With respect, the trial magistrate had misdirected himself. S.4(1) of the Motor Vehicles Insurance Ordinance states:

> ... it shall not be lawful for any person to use, or to cause or permit any other person to use, a motor vehicle on a road unless there B is in force in relation to the use of the vehicle by that person or that other person, as the case may be, such a policy of insurance or such a security in respect of third party risks as complies with the requirements of this Ordinance.

C Mark the use of the words "for any person". Ownership is not in issue here. So while granting that the primary duty to have a policy of insurance or such a security in respect of third party for motor vehicles lies on the owner of the motor vehicle, the law makes it unlawful for

anybody to use, or to cause or permit any other person to use a motor vehicle on a D road (mark you "a road" and not necessarily "a public road") unless the motor vehicle has an insurance or third party insurance cover. Equally general is the section of the law that sets out the sentence for any one contravening the law in that matter. Opening sentence of s.4(2) of the Motor Vehicles Insurance Ordinance states: E

If a person acts in contravention of this section he shall be liable to a ...

F My interpretation of s.4(1) and (2) of the Motor Vehicles Insurance Ordinance is that the consequences of driving a motor vehicle which has no insurance cover is equally borne by the owner or anybody in control of the motor vehicle and the driver of the motor vehicle irrespective of his status. The seriousness of the breaching of the law in this respect is not G lessened by the fact that the driver may not be the one with the primary duty of buying an insurance cover for the said motor vehicle. The trial magistrate had therefore misdirected himself in passing a very lenient sentence on the accused on this charge. H

The import of s.10(1) (a) (2) of the Transport Licensing Act, 1973 is at all four with s.4(1) of the Motor Vehicles Insurance Ordinance. The responsibility to see to it that a goods vehicle or a public service vehicle shall be used for the carriage of goods for hire or reward or in connection with any trade or business carried I

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RUBAMA J

A on by a person in accordance with the terms of a licence as issued under the Transport Licensing Act, 1973 has not been primarily put on the owner alone. Section. 10(1)(a) (2) and (7) spreads this primary obligation to a wider range of people. The definition of "owner" under the Act is wider and covers those who have rented the motor vehicle. An B `owner' in relation to a vehicle which is the subject of hiring agreement or hire purchase agreement means "the person in lawful possession of the vehicle under that agreement" while the status of a driver even when employed as such has been elevated to a level that would make it difficult for him to plead for leniency on account of his having broken the law in the C course of his employment. The law has made it his primary duty to see that the motor vehicle he drives has the requisite licence. For s.10(2) of the Transport Licensing Act, 1973 provides:

D When a goods vehicle is being used on a road for the carriage of goods or a motor vehicle is being used for the carriage of person, the driver of the vehicle, if it belongs to him or is in his possession under an agreement for hire, hire purchase or loan, and, in any other case, the person in whose ownership or possession the vehicle is, shall for the purpose of this Act be deemed to E be the person by whom the vehicle is being used.

Section 10(7) of the Transport Licensing Act, 1973 which provides for the punishment is equally in general terms. Its F opening sentence reads:

If any person uses a motor vehicle in contravention of this section he shall be guilty of an offence and shall be liable on conviction ... G

Mark the use of the words "any person uses a motor vehicle" and if these are read, as they should be, together with what the law deems to be the user of the vehicle at given instances as stated in s.10(2) of the Act, then one is made to H understand that no leniency is to be shown when

passing sentence to a mere driver only because he is an employee. Leniency may of course be shown to such a person but for reasons other than the fact that the primary duty to buy or obtain appropriate licence under the Transport Licensing Act, 1973 lied on the owner of the motor vehicle. The Act I specifically forbids such an approach. The trial magistrate had

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RUBAMA J

A therefore misdirected himself when he took this very factor into consideration when sentencing the accused after convicting him, for having used a motor vehicle in contravention of s.10(1)(a) and (2).

I have, I hope, made it clear that the case of R. v Athumani Saidi (supra) is not applicable in every case where a driver is convicted of a traffic offence either under the Road Traffic Act, 1973, the Transport Licensing Act, 1973, the Motor B Vehicles Insurance Ordinance, Cap.169 or any other law. True the duty to maintain a motor vehicle in good repair or obtaining a road licence for it rests on the owner of the motor vehicle and that a trial court when passing sentence to a C mere driver has to bear this as a mitigating factor. But the accused could not say that he needed the permission of the owner of the motor vehicle he was driving to comply with a police order given to him personally. The accused was duty bound to send the motor vehicle to the police. He needed no permission of his employer to comply with this order. The D trial magistrate had therefore grossly misdirected himself in passing a lenient sentence on the basis of this court's authority.

Another thing. The trial magistrate had not complied fully with s.4(2) of the motor Vehicles Insurance Ordinance. The E accused was not called upon to state why he should not be disqualified from holding or obtaining a driving licence for a period of twelve months from the date of the conviction. This mandatory sanction in the absence of special reasons was overlooked.

F I had evaluated the need for revising the sentences upwards to give them the teeth they so obviously lacked. Because of the time lapse, I had thought for sometime of leaving them as they were, but that would be wrong. The trial magistrate had seriously misdirected himself on this issue. Accordingly I set aside the sentences imposed on all the four offences and substitute the following sentences: G

2nd offence: 500/= or three months imprisonment in default.
3rd offence: 1,500/= or five months imprisonment in default. H
4th offence: 1,500/= or five months imprisonment in default.
5th offence: 1,000/= or four months imprisonment in default. I

1986 TLR p196

A The accused is also disqualified from holding or obtaining a driving licence for a period of twelve months effective his date of conviction, i.e. 7.10.85.

Order accordingly.

1986 TLR 196

B

[zRPz]AMINA RASHID v MOHINDER SINGH AND ANOTHER 1986 TLR 196 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Mustafa JJA, Makame JJA, Omar JJA

C

25th July, 1986.
CIVIL APPEAL 8 OF 1986
Flynote

D Civil Practice and Procedure - Ex-parte orders - Application to set them aside - Appellant had deliberately absented herself from the hearing of the applications - Whether request to set aside the orders may be acceded to.

-Headnote

The appellant deliberately absented herself from the hearing of applications before the Court which concerned her. The E applications were heard ex-parte and orders were issued accordingly. The appellant sought to have the orders set aside.

Held: We are satisfied that the appellant deliberately absented herself from the hearing of the applications and therefore F her request cannot be granted.

Case Information

Order accordingly.

G No case referred to.

Rutashobya, for the appellant
D'Souza and Mrema for the respondents

[zJDz]Judgment

H Mustafa, J.A.: This matter arose from a Probate and Administration Cause No. 16 of 1983. Anand Singh died and by his will appointed one of his sons, Mohinder Singh as his executor. Probate was granted to Mohinder Singh on 2.2.1984.

I One Amina Rashidi was apparently living with the deceased Anand Singh before Anand Singh died. Two children were born

A during such association, and these two children were minors, and had been included in the list of beneficiaries to the estate along with other issue. Amina Rashidi was not a beneficiary, but she was the guardian of the two minor children born to her.

Sometime in May, 1985 in Miscellaneous Civil Application No. 65 of 1985 Mohinder Singh, the executor, applied for an B injunction to issue in the High Court restraining Amina Rashidi from intermeddling with the estate, among other prayers. The application was successful and the court issued the necessary orders on 11.7.1985.

C Two other beneficiaries, Ardensina and Chausiku in or about November, 1984 filed an application in the High Court concerning the alleged intermeddling by Amina Rashidi in the estate and order for of a property, a building on Plot 19, Block G, Area F, Arusha was made as a result by the High Court.

D The said plot 19 was duly sold to one Alwi Shariff for Shs. 450,000/= and the proceeds were distributed or to be distributed to the beneficiaries under the will. The sale to Alwi Shariff was sanctioned by High Court.

It appears that Amina Rashidi was occupying the building on Plot 19 purchased by Alwi Shariff. Alwi in Miscellaneous Civil Application No. 66 of 1985 sought and obtained an eviction order in the High Court against Amina Rashid, and E Amina was duly evicted. The eviction order was dated 11.7.85.

Then it would seem that Amina Rashidi had filed an application supported by an affidavit on or about 10.7.85 to set aside the sale of Plot 19 and for permission for her to purchase on a re-sale. That application Miscellaneous Civil Application F No. 67 of 1985 is still pending.

Amina Rashidi has filed an appeal, in fact two appeals which apparently were consolidated, into one. It is a vague appeal, and is not clear so far as the grounds of appeal are concerned. It would seem that Amina Rashidi was seeking a G reversal of the order of the High Court granted to the executor Mohinder Singh on 11.7.85. It was an application restraining Amina Rashidi from intermeddling with the estate. The other prayer would appear to be for a reversal of the H order of the High Court confirming the sale of the building on Plot 19 to Alwi Shariff. The grounds advanced were that the High Court had made the orders in the absence of Amina Rashid, after the advocate representing her had withdrawn with leave of the court. The other ground was that Amina Rashidi was not notified of the sale of Plot 19. I

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MUSTAFA JJA, MAKAME JJA, OMAR JJA

A Now the orders of the High Court Amina Rashidi seeks to overturn were made on 11.7.85.

Mr. D'Souza and Mr. Mrema for the respondents Mohinder Singh and Alwi Shariff have filed preliminary objections. Mr. D'Souza submitted that the notices of appeal were filed out of time, in fact filed after 42 days instead of 14 days in B terms of Rule 76 of the Court of Appeal Rules. To that Mr. Rutashobya for Amina stated that Amina knew of the High Court order on 9th August, 1985, and had filed the notice of appeal on 23rd August, 1985 in time. There is no affidavit filed by Amina that she had come to know of the High Court order on 9th August, 1985; that statement was merely C contained in the notice of appeal itself.

Mr. D'Souza's second objection was that the certificate under rule 83 (1) of the Court of Appeal Rules concerning the time taken for preparation and delivery of the copy of proceedings was ineffective as the provisions in Rule 83(1) and D Rule 83(2) were not complied with. To that objection Mr. Rutashobya submitted that Amina Rashidi was not legally represented and that she had been improperly abandoned by her advocate, one Mr. Kinabo. After the abandonment Amina Rashidi was seeking the aid of the Law Society and the Dar es Salaam University Legal Aid Committee, which E rendered help to her.

Another objection was that leave to appeal in terms of Section 5(1) (c) of the Appellate Jurisdiction Act from the High Court was not sought or obtained. Without such leave the appeal is incompetent. Mr. Rutashobya trotted out the same excuse as before, that Amina Rashidi was abandoned by her counsel. He could not explain why no application was F made to obtain such a certificate out of time after legal aid was given to Amina Rashidi on or about 23.8.85.

G Another objection raised was that the provisions of Rule 83(1) (c) and (d) were breached in that no court fees were paid or security for costs furnished and no exemption was applied for or granted in terms of Rule 122 of the Court of Appeal Rules. Mr. Rutashobya could not explain this away except again on the ground that Amina Rashidi was unrepresented. H

Mr. D'Souza submitted that the appeal before us is premature because there is an application being Miscellaneous Civil Application No. 67 of 1985 filed by Amina Rashidi and pending before the High Court. That application 67 of 1985 is for the setting aside of the sale of Plot 19 to Alwi Shariff, the same point for which the appeal is before this Court. I

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MUSTAFA JJA, MAKAME JJA, OMAR JJA

A On this Mr. Rutashobya made a startling submission. He submitted, on the instruction of Amina Rashid, that Amina Rashidi did not authorize that application 67/85 to be filed, and that while Amina knew of the contents of the affidavit in general terms, she had not signed the said affidavit nor sworn to it before a commissioner for oaths. He alleged that Mr. B Kinabo had acted without authority in filing that application and Mr. Ojare, the Commissioner for Oaths had given a false statement that Amina had signed in his presence. Amina alleged that the signature on the affidavit was not hers. In fact she alleged that both Mr. Kinabo and Mr. Ojare, both practicing advocates and therefore officers of the court, had perjured themselves. C

We are surprised that Mr. Rutashobya has made these serious and criminal allegations before us, without having first obtained an affidavit from Amina Rashidi to that effect. We would have thought that before Mr. Rutashobya would make D these allegations, albeit on behalf of Amina Rashidi, he would have thoroughly investigated the matter to ascertain how true they could be, and certainly not without a supporting affidavit from Amina Rashidi.

Mr. Rutashobya has claimed that Civil Application No. 67 of 1985 was in fact not before the court, as Amina Rashidi was not concerned with it. E

Mr. Rutashobya conceded that an essential document, the court order in Miscellaneous Civil Application No. 66 of 1985 in an application by Alwi Shariff for an order of possession of Plot 19 and for the eviction of Amina Rashidi therefrom was absent from the record, but sought to excuse it on the ground that Amina had been abandoned by her advocate and F was unrepresented - that was an infringement of the provisions of Rule 89 (1)(g).

The Memorandum of Appeal was filed on 2nd April, 1986 and was objected to by Mr. D'Souza as being vague and imprecise, which it is. Mr. Rutashobya has put forward the general argument that Amina Rashidi was unrepresented. He G also submitted that Mr. Kinabo who had at some stage represented Amina Rashidi, had deliberately and improperly let her down. There was the incident concerning the Miscellaneous Civil Application No. 67 of 1985 already referred to. H

Mr. Rutashobya alleged that on 11.7.85 before Chua, J. Mr. Kinabo misinformed the court on an important matter. Mr. Kinabo was recorded as saying in court:

I have been trying to communicate with my client (Amina Rashidi) but have failed. I have informed her this morning I

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MUSTAFA JJA, MAKAME JJA, OMAR JJA

A that I intend to withdraw from the case. She was present in person in this Court today but after I told her that I intended to withdraw from the case she left the court precincts. She did so despite the fact that I told her to appear in person. Under the circumstances I pray for leave to withdraw from this matter.

B The court granted Mr. Kinabo leave to withdraw and proceeded to here the application 65/85 and Miscellaneous Civil Application No. 66/85 ex parte, applications by Mohinder Singh and Alwi Shariff.

C Mr. Rutashobya submitted that what Mr. Kinabo told the court was a lie, that Amina Rashidi knew nothing about the matter and suggested that the proper step the High Court should have taken was to have adjourned the hearing of the applications and to have summoned Amina Rashidi. He implied that the judge should have disbelieved Mr. Kinabo. We D find Mr. Rutashobya's submission somewhat startling. Again he has made this serious allegation without a supporting affidavit, and it does not appear to us that he has seriously looked into the veracity or otherwise of this incident as narrated to him allegedly by Amina Rashidi.

E We are of the view that the High Court judge was perfectly entitled to accept the word of Mr. Kinabo given from the Bar at its face value and to have acted in the way the judge did.

The whole thrust of the appeal would appear to be that as the sale of the building on plot No. 19 and the order to Amina F Rashidi not to intermeddle with the estate were made in the absence of Amina Rashidi, such orders should be set aside to allow Amina to be heard on those applications.

We are satisfied that Amina Rashidi deliberately absented herself from the hearing of the applications after she was G informed by Mr. Kinabo that the latter was going to withdraw. We see no reason for acceding to her request.

We think it pertinent to point out that on page 63 of the record filed, paragraph VIII of the affidavit sworn to by Amina Rashid would give the lie to her allegation that she knew nothing of the filing and institution of Miscellaneous Civil H Application No. 67 of 1985. That affidavit was sworn by Amina Rashidi on 24.6.85.

The objections raised by Mr. D'Souza to the competency of the appeal are well founded and substantial. In terms of Rule 82 of the court of Appeal Rules we hold that no appeal lies and we strike off the appeal as incompetent. I

1986 TLR p201

A As the appellant is on legal aid, we make no order as to costs.

Appeal dismissed.

1986 TLR p201

C

[zRPz]PILI JUMA BILALI v ABDULLAH KHALIFA 1986 TLR 201 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

5th June, 1986.
CIVIL REVISION 2 OF 1986
Flynote
D Civil Practice and Procedure - Jurisdiction - Contractual tenancy - Whether Primary Court has jurisdiction over the matter.
Rent Restriction Act, 1984 - Contractual tenancy - Jurisdiction - Whether Primary Court has jurisdiction over the matter
-Headnote
E A dispute over the terms of a contractual tenancy was entertained in a Primary Court. The dispute was within the ambit of the Rent Restriction Act, 1984.
Held: A primary Court has no jurisdiction over a dispute on the terms of a contractual tenancy.
F
Case Information
Order accordingly.
No case referred to.
[zJDz]Judgment
G Lugakingira, J.: The dispute in this proceeding was over the terms of a contractual tenancy. The proceeding was commenced in the Urban Primary Court at Singida and terminated on appeal in the District Court. It then came to the attention of the Resident Magistrate in-charge who was of the view that the two courts had no H jurisdiction in the matter in view of the provisions of the Rent Restriction Act, 1984. He therefore forwarded the records here for appropriate orders.
I have had the opportunity of perusing the Act but it is not clear to what extent it ousts the jurisdiction of the courts in I matters arising under it. There is a long list of powers, including the power
1986 TLR p202
A to exercise jurisdiction in all civil matters, which are vested in Regional Housing Tribunals, but it is not clear whether those powers are exercisable to the exclusion of the courts. This important question cannot be answered in the present exercise where I have not had the advantage of arguments and must await a proper occasion.
B That said, however, I agree with the learned Resident Magistrate in-charge that the Primary Court had no jurisdiction in the matter. The jurisdiction of primary courts arises where the law applicable is customary law or Islamic law, or where jurisdiction is otherwise conferred by statute. The present case arises out of a landlord and tenant agreement C which related to premises situated in a rent restriction area and there is no provision conferring jurisdiction on

primary courts in that sphere. It follows, therefore, that the purported proceeding in the Primary Court was a nullity as was the appeal arising therefrom.

D Accordingly, the proceedings are quashed in their entirety. The plaintiff is at liberty to pursue its remedies in the appropriate venue.

Order accordingly.

1986 TLR p202

F

[zRPz]JUMANNE AYUBU v THE REPUBLIC 1986 TLR 202 (HC)

Court High Court of Tanzania - Tabora

Judge Chipeta J

4th day of February, 1987.

MISCELLANEOUS CRIMINAL CAUSE 53 OF 1986

Flynote

G Criminal Practice and Procedure - Bail - Threatening to kill another person - Whether a bailable offence - Section 148(5)(e) Criminal Procedure Act, 1985, interpreted.

-Headnote

The applicant was charged with, inter alia, threatening to kill another person. The Court before which he was charged refused to admit him to bail relying on the provisions of section 148(5)(e) of the Criminal Procedure Act, 1985. The H High Court considered whether or not threatening to kill another person is not a bailable offence.

Held: A threat to kill another person is a serious threat of violence and was envisaged by section 148(5)(e) of the I Criminal Procedure Act, 1985.

1986 TLR p203

CHIPETA J

Case Information

A Application dismissed.

No case referred to.

Nyabiri, for the Republic.

[zJDz]Judgment

B Chipeta, J.: On 8th January, 1987, I dismissed the applicant's application for bail pending trial. I reserved my reasons for doing so, which I now give in this ruling.

The applicant stands charged before Tabora District Court in two counts, namely, threatening to kill and contempt of court, c/ss 89 (2) (a) and 114 (1) (c) of the Penal Code, respectively. C

In refusing to admit him to bail, the learned magistrate took the view that bail in such cases was disallowed by the provisions of section 148(5)(e) of the Criminal Procedure Act, 1985.

D During the hearing of this application, Mr. Mussa learned state attorney, objected to the application on the grounds that in his submission a threat to kill another person amounted to a serious threat of violence.

With respect, I entirely agree with Mr. Mussa. As I have had occasion to point out in similar applications, I am of the view that "a serious threat of violence" should be construed to mean such threat of violence as would cause, in the mind E of any reasonable person, a sense of imminent danger to his person or that of another person. A threat to kill another is, in my view, a serious threat of violence.

F The Act does not say in what manner the threat should be communicated or exhibited. As the words stand, I think that they must be taken to mean a serious threat made by words or exhibited by some physical act. In that sense, then, the words cast a very wide net, and I fear that they are likely to be abused by people with little conscience. Such charges G are very easily made, and not always easily proved.

Be that as it may, the charge in court is of a nature that was envisaged by the tough section 48 (5) (e) of the Criminal Procedure Act, 1985. H

It was for the foregoing reasons that I dismissed the application.

Application dismissed. I

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A

[zRPz]TANGANYIKA BUS SERVICE CO. LTD v THE NATIONAL BUS SERVICE LTD (KAMATA) 1986 TLR 203 (HC)

Court High Court of Tanzania - Mwanza

Judge Mwalusanya J

3rd June, 1987.

B CIVIL CASE 21 OF 1986

Flynote

Contract - Mistake - Mistake as to tender accepted - Tender accepted on the mistaken belief that tenderer was the highest bidder while he was not - Whether the contract was void for mistake. C

Contract - Damages - Special damages - When awardable.

-Headnote

The defendants invited tenders for the purchase of one of its vehicles. The plaintiff's tender was accepted and the price D was paid. When the plaintiff wanted to take delivery of the vehicle the defendant refused delivery of the same alleging mistake in the award of the tender to the plaintiff. The defendant argued that they wanted to award the tender to the highest bidder who happened to be one Sanga and not the plaintiff. The defendant sought to treat the contract as void for mistake. E

The plaintiff filed the suit for a declaration that they were the lawful owners of the vehicle. They also asked for shs.10,000/= being special damages for expenses incurred when they made an abortive trip to Dar es Salaam from Mwanza to collect the vehicle.

F Held: (i) A unilateral mistake by one party to the contract will affect the validity of the contract only if the doctrine of non est factum is successfully proved.

(ii) the damages sought are recoverable because they are direct, foreseeable and reasonable. G

Case Information

Order accordingly.

Cases referred to:

H 1. Sheikh Brothers Ltd. v Arnold Julius Ochsner [1957] E.A. 86.

2. Saunders v Anglia Building Society [1970] 3 All E.R.961.

3. Hadley v Baxendale [1854] 9 Ex.341.

[zJDz]Judgment

Mwalusanya, J.: This is a suit over a contract of sale of a vehicle between Tanganyika Bus Service Co. I Ltd. (the plaintiff) and National Bus Services Ltd. - Kamata (the

1986 TLR p205

MWALUSANYA J

A defendants). The defendants invited tenders for the purchase of its bus reg. no. Su. 17719 Fleet No. 140. The plaintiff was one of those who offered to purchase the said bus. The defendants vide its letter dated 1/7/1986 which is Exh.A in court accepted the offer and asked the plaintiff to pay cash shs.580,280/= and collect the bus before 24/7/1986. The plaintiff duly paid the Shs.580,280/=. However when the plaintiff's Traffic Manager Mr. R.S. Sandhu (PW.2) went to B collect the bus on 18/7/1986 the defendants refused delivery of the same. According to the defendant's witness Mr. Jovin A. Lyimo (DW.1) who is also the defendant's Corporation Secretary, they refused delivery because there was a C mistake in the award of the tender to the plaintiff. The witness testified that they wanted to award the tender to the highest bidder but by mistake the plaintiff was awarded who was not the highest bidder, and so it is said that the highest bidder one Yohannes s/o Sanga should have been awarded the tender. D

As a basic statement, mistake in contract does not affect the validity of the agreement. It is only when there is a mutual mistake, that mistake can affect the validity or enforceability of a contract - see the decision of the Privy Council in a case from Kenya Sheikh Brothers Ltd. v Arnold Julius Ochsner [1957] E.A. 86. The Tanganyika Contract Act Cap.433 E in s.20(1) states:

Where both the parties to an agreement are under a mistake as to a matter of fact essential to an agreement, the agreement is void.

F The crucial phrase is 'both parties', because, the fact that only one party is mistaken will not affect the contract, unless one is led into his mistake by the actions of the other party. But in here it is common ground that the plaintiffs had nothing to do with the mistake allegedly made by the defendants. G

As for a unilateral mistake by one party to the contract, the law is that it will affect the validity of the contract only if the doctrine of Non est Factum (it is not my deed) is successfully proved. Non est factum is the name given to the argument raised when the defendant in a contract suit alleges that a document which he has signed should not be binding H upon him, because he

was induced to sign it on the understanding that it was of a completely different nature from what it is in fact. That is a very difficult point to establish because the mistake must be one relating not to the content but to the I character of the subject matter. The document signed should

A be radically different in character from that which the plaintiff believed he was signing. As Lord Reid pointed out in the decision of the House of Lords in Saunders v Anglia Building Society: [1970] 3 All E.R. 961 at p.964 that

B There must I think be a radical difference between what he signed and what he thought he was signing - or one could use the words 'fundamental' or 'serious' or 'very substantial'. But what amounts to a radical difference will depend on all the circumstances.

C So the essence of the plea non est factum is that the person signing, believed that the document he signed had one character or one effect whereas in fact its character or effect was quite different. But that is far from the case in here because the difference is very narrow indeed i.e. between two bidders who were the highest bidders.

D In my view the mistake in here did not go to the substance of the whole consideration or to the root of the matter. The plea of non est factum is a plea which must necessarily be kept within narrow limits on the ground that no man should take advantage of his own wrong. Negligence or carelessness or inadvertence on the part of one raising non est factum E would therefore prevent the doctrine being effective and that signing a document without reading it or appreciating its consequences is prima facie negligence. I think the doctrine should only be available to those who are senile, blind or illiterate or in some other way quite incapable of comprehending the document presented to them for signature. For that F reason an order of specific performance will issue as prayed.

The plaintiff has also asked for shs.10,000/= being special damages. He said that those were the expenses incurred by the traffic manager (PW.2) and the driver and the turnboy when they made an abortive trip to DSM from Mwanza to G collect the bus. The expenses are for food and accommodation for some ten days or so. The General Manager of the plaintiff company Mr. S.B. Hassanali (PW.1) produced a receipt (Exh.B) being the cost of expenses that were paid out to those three employees. No challenge was offered by the defendants to those damages. And in my view those H damages are payable because they are direct, foreseeable and reasonable, and quite in line with the rule in Hadley v Baxendale: (1854) 9 Ex.341. I accordingly award the same to the plaintiffs as prayed the suit. I

Order accordingly.

[zRPz]ROBERT ARANJO v ZENA MWIJUMA 1986 TLR 207 (CA)

Court Court of Appeal of TAnzania - Dar Es Salaam
Judge Makame JJA, Kisanga JJA, Omar JJA

25th February, 1987.
CIVIL APPEAL 15 OF 1986
Flynote
B Family Law - Division of matrimonial assets - Whether the conduct of a guilty party who causes the breakdown of the marriage is relevant in ordering division of matrimonial assets.
-Headnote
C The appellant had petitioned for divorce on the ground of his wife's desertion. The Primary Court granted the decree on the grounds of the respondent's desertion and her persistent denial of sexual intercourse to the appellant. The Court further ordered a division of the matrimonial assets and awarded a quarter thereof to the respondent wife. The appellant challenged the award to the wife on the ground that she was the cause of the breakdown of the marriage. D
Held: Consideration of the conduct of the party who causes the breakdown of the marriage is relevant only in relation to the acquisition of the matrimonial assets not in relation to the breakdown of the marriage. E
Case Information
Appeal dismissed.
Case referred to: F
1. Hawa Mohamed v Ally Sefu, Civil App. No. 9 of 1983.
M.K.B. Wambali, for the respondent
[zJDz]Judgment
G Kisanga, J.A.: The appellant, Robert Aranjo, had petitioned for divorce on the ground of his wife's desertion. The Primary Court granted the decree on the grounds of the respondent's desertion and her persistent denial of sexual intercourse to the appellant. The Court further ordered a division of the matrimonial assets and awarded a quarter thereof to the respondent wife. H
The husband appealed to the District Court. In a rather confused judgment the Resident Magistrate misconstrued the decision of the Primary Court and asserted that the Primary Court had granted the divorce on grounds of cruelty and sexual incapacity on the part of the appellant husband. On analysing the evidence I
1986 TLR p208
MAKAME JJA, KISANGA JJA, OMAR JJA
A himself, the Resident Magistrate rightly found that the decree could not be based on the husband's sexual incapacity. However he upheld the decree on grounds of constructive desertion on the part of the husband in that the wife was driven away from the matrimonial home by the cruel acts of the husband. He also upheld the order for the division of the matrimonial assets.
On further appeal to the High Court the appellant husband, while conceding that the marriage had irreparably broken B down, contended that the decree of divorce should have been granted on the ground of his wife's desertion and not on the ground of cruelty leading to constructive

desertion on his part. In other words he urged that his wife, and not himself should have been found guilty or to blame for the breakdown of the marriage. The High Court (Maina, J.) found that C there was some evidence of cruelty on the part of the husband, but held that whether the divorce was founded on the husband's cruelty or on the wife's desertion, it would not affect the division of the matrimonial assets between the parties. D Accordingly he upheld the concurrent orders of the lower courts for the division of the matrimonial assets. Aggrieved by such decision the appellant now seeks to appeal further to this Court upon a certificate by the High Court that a point of law is involved in the decision. At the hearing of the appeal the appellant appeared before us and argued the appeal in E person, while the respondent was represented by Mr. M.K.B. Wambali, advocate from the Legal Aid Committee of the Law Faculty of the University of Dar es Salaam.

The point of law certified by the High Court (Mapigano, J.) for our consideration was in the following terms: F

The issue is whether a party who has been the cause of the breakdown of a marriage should benefit from her/his own wrong. Another issue will be whether dissolution was warranted. G

We deal with the second issue first, namely, whether dissolution was warranted. We have to point out at once that the issue as stated is too general and vague to be of any assistance to us. For, the question whether dissolution of the H marriage is warranted or not can be one of law or one of fact. It would be a point of law, for instance, if the complaint is that there was no evidence at all on the record to support such dissolution, or that the dissolution was based on some I misdirection or non-direction by the courts below. On the other hand it would be a point of fact if, for instance, the allegation

A was that the evidence in support of the dissolution was insufficient. The learned judge was required by law to certify to us only a point of law, but as it is, we cannot discover what he really meant to certify to us.

But the more serious criticism is that on the information which was before him, the learned judge could not have raised the B issue in question. It is clear that the appellant himself had petitioned for divorce, and there was overwhelming evidence that the marriage had broken down irreparably. Indeed the appellant himself expressly stated before Maina, J. that the marriage had irreparably broken down, his only contention being that the breakdown should be blamed not on him but on C the respondent who was not prepared to return to the matrimonial home. In such circumstances, it seems plain to us that dissolution of the marriage was the natural and logical consequence, and we can see no room for questioning it.

D We now turn to the first point whether a party who has been the cause of the breakdown of the marriage should benefit from his/her own wrong. As stated earlier, Maina, J. directly addressed himself to this question and came to the conclusion that whether the appellant was guilty of cruelty or the respondent was guilty of desertion it made no difference as regards the

division of the matrimonial assets. In coming to that conclusion he relied on section 114 of the Law of E Marriage Act which provides that:

114 (1) The Court shall have power, when granting or subsequent to the grant of a decree of separation or divorce, to order the F division between the parties of any assets acquired by them during the marriage by their joint efforts or to order the sale of any such assets and the division between the parties of the proceeds of sale.

(2) In exercising the power conferred by subsection (1), the court shall have regard - G

(a) to the custom of the community to which the parties belong;

(b) to the extent of the contributions made by each party in money, property or work; were contracted for their joint benefit; H and

(c) to any debts owing by either party which were contracted for theri joint benefit; and

(d) to the needs of the infant children, if any, of the marriage, and subject to those considerations, shall incline towards I equality of division.

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MAKAME JJA, KISANGA JJA, OMAR JJA

A The rest of the section is not relevant to the facts of this case. The learned judge took the view that there was nothing in this section, or indeed in the provisions of the Act as a whole, which makes the conduct of the guilty party who causes the breakdown of the marriage a relevant consideration in ordering division of the matrimonial assets.

B In a lengthy submission before us the appellant strongly criticised this view and vigorously contended that it would be grossly unfair to permit a guilty party who wrecks the marriage to benefit from his/her own wrong. He urged that section 114 of the Law of Marriage Act should be read and construed so as to make the conduct of such guilty party a relevant C consideration in ordering division of the matrimonial assets. He claimed that this was the view expressed by this Court in the case Hawa Mohamed v Ally Sefu C v App. No. 9 of 1983 (unreported). The relevant passage in Hawa's case reads:

D With regard to the fear that the broad view might result in a wife being "allowed to benefit from a marriage which she has wrecked" we think, with respect, that it is misguided because what is in issue is the wife's contribution or efforts towards the acquisition of matrimonial or family assets, and not her contribution towards the breakdown of the marriage. Of course there may be cases E where a wife's misbehaviour may amount to failure to contribute towards the welfare of the family and thus failure to contribute towards the acquisition of matrimonial or family assets; but this has to be decided in accordance with the facts of each individua F l case.

Relying on the last sentence which is underlined, the appellant pressed that the respondent had been guilty of desertion which in turn wrecked their marriage and therefore that factor should have been held against her in ordering division of G their matrimonial assets. We think that the appellant has not quite understood the message contained in this passage. As the passage makes it very clear, the Court in Hawa's case was dealing with the issue of contribution towards acquisition H of the matrimonial assets, not contribution towards the breakdown of the

marriage which is the issue in the present case. The underlined words which the appellant seeks to rely on simply mean that in ordering division of the matrimonial assets, the Court will consider whether the conduct or behavior of the guilty party who wrecked the marriage operated in I such a way that by reason of such conduct the said party cannot have made a

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MAKAME JJA, KISANGA JJA, OMAR AJJA

contribution to the acquisition of the matrimonial assets. So that if, for example, the guilty party was in desertion at the time of the acquisition of the matrimonial assets, such conduct would be a relevant consideration when deciding on the extent of the party's contribution towards acquisition of the matrimonial assets; the point to stress is that such conduct, in order to warrant consideration, must have been operative at the time of acquiring the matrimonial assets. Thus in a B proper case the Court may well find that the guilty party made no contribution at all if, say, he/she was in desertion for the whole period during which the said assets were acquired.

C We are therefore quite satisfied that this Court in Hawa's case did not consider the question whether the guilty party who causes the breakdown of the marriage should benefit from his/her own wrong because, as the Court clearly stated, that question was not before it. We now address ourselves to that question which has been raised squarely in the present D appeal. It is pertinent to point out that subsection (2) of section 114 of the Law of Marriage Act which was reproduced earlier in this judgment, sets out four matters to which the Court shall have regard when ordering division of the matrimonial assets. It is noted, however, that the extent of the guilty party's contribution to the breakdown of the E marriage is not made one of such matters, nor can it be construed to fall under any one of them. We think that this was such an obvious and significant factor that if it was intended to be one of such considerations Parliament would not have failed to say so. Indeed we would go further and say that in our view such a provision would pose a practical problem. F Consider, for instance, a situation where a marriage lasted for a long time during which the spouses jointly acquired matrimonial assets, but the marriage was eventually dissolved because one of the spouses committed adultery recently. Now, if the appellant's submission were to be upheld, the implication would be to deny the guilty party his/her share of G the joint matrimonial assets because of adultery committed only in old age and long after the said assets had been acquired. In our view there could be no legal justification for that. As we have amply demonstrated herein before we H think that consideration of the conduct of the party who causes the breakdown of the marriage is relevant only in relation to the acquisition of the matrimonial assets, not in relation to the breakdown of the marriage. On the evidence the matrimonial assets in the present case were acquired jointly by the parties long before the respondent had left the matrimonial home. Thus, whether the respondent was in desertion or whether, as found by the District I

1986 TLR p212

A and the High Courts, she was forced out of the matrimonial home by the appellant's cruelty, that was neither here nor there. It was not relevant for the purpose of considering division of the matrimonial assets, and the learned High Court Judge was perfectly entitled so to hold.

B In the event this appeal cannot succeed, and it is accordingly dismissed with costs.
Appeal dismissed.
1986 TLR p212
C
[zRPz]MASUMBUKO RASHID v THE REPUBLIC 1986 TLR 212 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

9th September, 1987. D
CRIMINAL APPEAL 72 OF 1986
Flynote
Criminal Practice and Procedure - Contempt of Court - Failure of magistrate to follow laid down procedures - Accused condemned unheard - Incurable irregularity. E
Administrative law - Natural justice - Principles of - Accused condemned unheard - Fundamental irregularity.
Criminal Practice and Procedure - Sentencing - Omnibus sentence imposed on two counts - Whether court imposing such sentence is rendered functus officio with regard to the same. F
-Headnote
The appellant and three others were jointly charged with robbery with violence and being in unlawful possession of a firearm. In the course of the proceedings before the trial court the accused persons exhibited conduct which amounted to contempt of court whereupon the magistrate peremptorily convicted them of contempt of court G without following laid down procedure. At the end of the trial all the accused persons were convicted as charged. The file was then sent to the High Court for sentencing. To each of the accused the court meted out an H omnibus sentence of ten years' imprisonment. On appeal the High Court considered the legality of the procedure adopted by the trial court in relation to the offence of contempt of court. In addition the Court considered whether it was rendered functus officio with regard to the question of sentence.
Held (i) When a court takes cognisance of an offence of contempt of court, it is essential that the court should I frame and record the
1986 TLR p213
CHIPETA J
substance of the charge, read such charge to the accused who should then be called upon to show cause why he A should not be convicted on the charge; and the accused should be given a fair opportunity to reply. Besides, the record of the court should contain an adequate note of the accused person's reply, if any, as well as the court's decision; B

(ii) the accused persons were condemned unheard; and, that violated the principle of natural justice that a man should not be condemned unheard;

(iii) failure to follow the procedure amounted to a fundamental, incurable irregularity; C

(iv) where a court, per incuriam, omits to pass sentence in respect of some counts on which the accused person is convicted, that court should not be deemed to be functus officio with regard to passing a sentence or sentences on the remaining count or counts, particularly where the record suggests that the omnibus sentence D related to a particular count.

Case Information

Order accordingly

Cases referred to: E

1. Joseph Odhengo s/o Ogongo v R, 21 EACA 302
2. Reg. v Gray [1970]2 Q.B. 36.
3. Abdullah Ibrahim v.R. [1960] E.A. 43
4. Ibrahim Ramadhan v.R. [1969] H.C.D. 218. F

Kwikima, for the appellants.

[zJDz]Judgment

Chipeta, J.: In Kigoma District Court, the appellant, Masumbuko Rashidi (the first accused at the trial) and G three others, namely, Samson Joseph (2nd accused), Atanasi Nahimana (3rd accused) and Mjanaheri Shomari (4th accused) were jointly charged on two counts: robbery with violence and unlawful possession of firearm c/ss 285 and 286 of the Penal Code, and sections 13 (1) and 31 of the Arms and Ammunition Ordinance, H respectively. They were all convicted as charged and were committed to this court for sentencing.

In this Court's Miscellaneous Criminal Cause No. 8 of 1986 this Court (Mchome, P.R.M. - extended jurisdiction) sentenced each of the convicts to ten years imprisonment. I

In view of the fact that the four accused persons were convicted on both counts, the sentence of ten years imprisonment appears to

be omnibus. Separate sentences ought to have been passed. I will return to this question later in this judgment. A

Dissatisfied, the appellant now appeals against the convictions and sentence. For ease of reference, I propose to retain the descriptions of the accused persons as they were at the trial.

Before I proceed to deal with the appeal in so far as it relates to the two counts, I propose to deal with one B matter that arose in the course of the proceedings before the trial court. The four accused persons first appeared before the District Court on 26th December, 1985 and entered pleas of "not guilty". They made no request whatsoever. C

On 8th January, 1986, the case came up for hearing. It was then that the four accused persons told the court that they wanted to engage an advocate. The case was then adjourned to the following day. The accused D persons repeated their request, but the learned trial magistrate ruled that the case should proceed and that the charge be read over to them. At that point, the accused persons left the dock in protest. Without further ado, the learned magistrate peremptorily convicted them of contempt of court and sentenced each of them to six months imprisonment. The case was then adjourned to 23rd January. E

On that day Mr. Kwikima, learned advocate, appeared for the four accused persons and requested for an adjournment to enable him to take instructions. The case was then adjourned to 21st February, 1986 and later F to 20th March, 1986. On that day Mr. Kwikima did not appear. The accused persons, again said that they wanted their advocate, but Mr. Kwikima, who happened to be within the court premises, had no instructions. When the charges were read over to them, the 4th accused walked out of the dock, and the trial magistrate, peremptorily convicted him of contempt of court c/s 114 (1) of the Penal Code and sentenced him to twelve G months imprisonment.

It has repeatedly been held by superior courts that when a court takes cognisance of an offence of contempt of court, it is essential that the court should frame and record the substance of a charge, read such charge to the H accused who should then be called upon to show cause why he should not be convicted on the charge; and the accused should be given a fair opportunity to reply. Besides, the record of the court should contain an adequate note of the accused person's reply, if any, as well as the court's decision. (See Joseph Odhengo s/o Ogongo v R., 21 E.A.C.A. 302.) I

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CHIPETA J

In the present case, that procedure was totally disregarded; no charge was drawn up, let alone read over to the A accused persons, and the accused persons were given no opportunity at all to say anything in reply. They were condemned unheard. It may well be that their conduct did amount to contempt of court in that their conduct can B be said to have been calculated to obstruct or interfere with the due course of justice or the lawful process of the court. (See Reg. v Gray, [1970] 2 Q.B. 36, at page 40). But where the basic principle of natural justice C that a man must not be condemned unheard has been violated following such breach of procedure ought not be sustained, for such irregularity is fundamental and, therefore incurable.

For these reasons, all the convictions for contempt of court are hereby quashed and all the sentences in relation thereto set aside. D

I now turn to the appeal against convictions for the offences of robbery with violence and unlawful possession of a firearm. The prosecution's evidence is to the effect that during the night of 21st December, 1985, at about E 2.30 a.m.. at Mwamgongo village in Kigoma District, while the complainant (P.W.3) was away on safari, his wife, one Zainabu Issa (P.W.1) was aroused from sleep by loud bang on her door. When she peeped through the window, she saw four bandits roaming around her premises. The bandits then forced the door open and rained bullets on the walls of the house using a machine gun. The bandits then entered the house and started F ransacking it. They stole therefrom cash and numerous valuables which included radios, a shot gun, lamps and clothes all valued at shs.257,180/=.

Apart from noting that the bandits numbered about four, P.W.1 and her children were too terrified to be able to identify any of the bandits and she did not dare raise an alarm. G

After the bandits left with their booty, P.W.1 gathered courage and raised an alarm. Many neighbours responded to the alarm. Among the first people to arrive at the scene was one Amri Swalehe (P.W.3), who is a brother of P.W.2. H

The people who responded to the alarm decided to hunt for the culprits and at the same time send a report to police. They split into two groups: one group was to go and report the incident to police, and the second, in I which P.W.3 was, to try and locate the culprits. The latter group set out on their mission following a path in the hills as they believed, correctly that was the route the bandits had taken.

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CHIPETA J

Meanwhile a militia man of Mwamgongo village, one Mohamed Said (P.W.4) was walking along the same path A towards Mwamgongo village. On the way, he met two people who turned out later to be the second and third accused persons, P.W.4 noticed that the two people were carrying a bag and a box like container which was B covered with a black coat. As he had no reason to suspect the two men, P.W.4 walked on.

On arrival at Bubango village, P.W.4 met P.W.3's group, P.W.3 then told P.W.4 that P.W.2's house had been broken into by armed bandits and that P.W.3 and his group were looking for the bandits. P.W.4 then recalled C having met the second and third accused persons earlier. So he decided to join P.W.3's team so as to find the two men.

On arrival at the home of one Shabani Gwango, a lorry came and the team boarded it. After travelling for about five minutes, they saw the two men. P.W.4 then told the driver to stop and the second and third accused D persons unsuspectingly boarded it.

P.W.4 immediately started interrogating the two men as to what they were carrying. The second accused's luggage was found to contain a radio, and that of the third accused had a radio and a lamp, P.W.3 easily E identified these articles to be the property of P.W.2. P.W.4 then arrested the two men, and the lorry moved on.

After travelling a short distance, P.W.4 saw three men ahead. As fate would have it, the three men, who turned out to be the appellant, the 4th accused and third person who later skipped, the three men signalled the lorry to F stop. The lorry stopped and the three men boarded it with their luggage. P.W.4 tried to question them, but the three men were uncooperative and hostile. Remembering that P.W.3 had said that the bandits had been armed, P.W.4 decided to play it cool. He then whispered to the driver to drive straight to Mwandiga police station. G

On arrival at Mwandiga Police Station, the appellant and another suspect jumped off the lorry and took to their heels. They were chased and the appellant was apprehended, but his colleague could not be apprehended. He is still at large. H

At the police station, the appellant was found in possession of clothes and a lamp which P.W.3 and P.W.2 later easily identified to be some of the property stolen from P.W.2's house. the appellant and his three co-accused persons were then re-arrested and charged accordingly.

In his defence, the appellant simply described the events leading up to his arrest. He said that on the day of his I arrest he was

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on his way to Gungu village and on the way he boarded a lorry up to Mwandiga. He then disembarked and A started for a bus stand but he was stopped and arrested by police officers.

After evaluating the evidence before him, the learned magistrate believed the prosecution witnesses to be truthful B and rejected the appellants' bare denial. He accordingly found as a fact that some of the articles stolen from P.W.2's house were found on the person of the appellant, and that the appellant's protestations of innocence were hollow. Applying the doctrine of recent possession he convicted all the four accused persons as charged.

It is a settled principle of law that the possessor of goods recently stolen may fairly be regarded as being the C actual thief or else a guilty receiver. His possession raises also, albeit less strongly, a presumption of his guilty connection with any further crime that accompanied the theft, such as burglary, robbery or murder. (See Abdullah Ibrahim v R., [1960] E.A. 43). To put it differently, possession by an accused person of property proved to have been very recently stolen can support a presumption that the possessor was involved in the commission of the offence which accompanied the theft. (See Ibrahim Ramadhani v R. [1969] H.C.D. No. E 218).

In the present case, the articles found in possession of the appellant were clearly identified to be part of the articles stolen from P.W.2's house in the course of a robbery only a few hours earlier. The doctrine of recent F possession, therefore, was correctly applied by the trial court. That the appellant could not have been innocently in possession of those articles is further demonstrated by the fact that immediately on arrival at Mwandiga police Station, the appellant took to his heels.

In sum, the prosecution's evidence fully justified the appellant's convictions. The convictions, therefore, were inevitable.

I now turn to the question of sentence. As pointed out earlier, Mr. Mchome, P.R.M. (extended jurisdiction) G passed a single sentence instead of two separate sentences. The question that arises, then, is whether this court is functus officio with regard to that question of sentence.

I am not aware of any direct authority on this point, but I humbly take the view that where a court, per incuriam, H omits to pass sentence in respect of some counts on which an accused person is convicted, that court should not be deemed to be functus officio with regard to passing a sentence or sentences on the remaining count or I counts, particularly where the record suggests that the omnibus sentence related to a particular count. I am fortified in

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this view by the fact that this court has often held that where a trial court omits to comply with statutory A provisions such as those in section 27 of the Road Traffic Act, 1973, such court is not functus officio in that regard.

In the present case, the record of this court in the sentencing proceedings show that Mr. Mchome had in mind the first count, for he repeatedly refers to "the offence of robbery". B

On the basis of the foregoing, I am of the view that it is quite proper for me to pass sentences in respect of the second count.

The question that next arises is whether it would be proper for me to pass sentences on the accused persons C without offering them an opportunity of being heard. I do not think that their presence is necessary. I say so because they were given that opportunity at the time the sentence of ten years imprisonment was passed, and they addressed the court in mitigation. I propose to use those pleas. Besides, I think it would be superfluous to D cause them to appear in

view of the sentences and orders I propose to impose. Having considered the seriousness of the offence and the accused persons' pleas in mitigation, I hereby sentence the appellant and his three co-accused persons to five (5) years imprisonment in respect of the second count to run concurrently with E the sentence of ten years imprisonment earlier passed. In fine, this appeal is dismissed in its entirely.
Appeal dismissed.
1986 TLR p218

[zRPz]IN THE MATTER OF THE ADOPTION ORDINANCE: SUBJECT INFANT SHARMIN JALALU 1986 TLR 218 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

29th January, 1988. G
CIVIL CAUSE 1 OF 1986
Flynote
Family Law - Adoption - Subject infant of the female sex - Applicant of male sex and single - Whether adoption order may issue - Adoption Ordinance, Cap. 335, s.4(2). H
-Headnote
The applicant, an unmarried male applied for an adoption order in respect of a female subject infant. The Court considered whether or not special circumstances were present in this case to justify the making of an adoption order. I
1986 TLR p219
CHIPETA J
Held: There are special circumstances which justify as an exceptional measure the making of an adoption order: A the applicant is the elder brother of the infant; the parents of the infant are not in a position to provide the full welfare of the infant; the applicant has had custody of the infant for upward of two years and has looked after her education and general welfare very well. B
Case Information
Application granted.
No case referred to. C
Kwikima, for the applicant.
[zJDz]Judgment
Chipeta, J.: After carefully perusing the affidavits filed by the applicant, ALKARIM JALALU LADAK, and D both parents of the infant, namely, JALALU JUMA LADAK and DOULAT W/O JALALU LADAK; and after hearing the parents of the infant and Mr. Kwikima, learned counsel for the applicant; and further, after examining the infant, SHARMIN d/o JALALU, I am satisfied that this application has been made in good faith. The E applicant, I am satisfied, is of the

requisite statutory age, that the consent of both parents aforementioned has been freely and voluntarily given, that the applicant has had, for upward of two years, the custody of the infant; F that the infant is willing and desirous of being adopted by the applicant, and that all the parties concerned understand the effects of an adoption order.

On the basis of the foregoing, I am satisfied that the applicant is a fit person to be granted an Order of Adoption, and that such Order would be in the best interests of the infant's welfare.

In the absence of special circumstances which justify as an exceptional measure, the making of an adoption G order, the applicant would be precluded from obtaining an adoption order in this matter by the provisions of section 4(2) of the Adoption Ordinance, cap.335, in that he is the sole male applicant and the subject infant is of H the female sex. But after hearing learned counsel, the applicant, the parents of the infant and the infant herself, I am satisfied that there are special circumstances which justify as an exceptional measure the making of an Adoption Order in this case. These include the fact that the applicant is the elder brother of the infant; that the I parents of the infant, who have five other children, are not in a position to provide the full welfare of the infant, particularly as regards the education of the infant who has impressed me as being

very intelligent; that the applicant has had custody of the infant for upward of two years and has looked after her A education and general welfare very well; and that he has an uncle who is liable to contribute to the support of the infant.

For the foregoing reasons, I hereby grant this application on terms set out in the order below. B

IN THE HIGH COURT OF TANZANIA AT TABORA
IN THE MATTER OF THE ADOPTION ORDINANCE
AND C
H/C CIVIL CAUSE NO. 1/1986
IN THE MATTER OF SHARMIN JALALU
ALKARIM JALALU LADAK - PETITIONER D
Order

Upon being satisfied that the applicant, ALKARIM JALALU LADAK, is a fit and proper person to adopt the infant, SHARMIN JALALU: E

And upon being satisfied that all the requirements under the Adoption Ordinance have been complied with.

It is hereby ordered that an Adoption Order be made in favour of the applicant, ALKARIM JALALU LADAK, F upon this condition, namely, that he shall adequately provide for the general welfare and education of the infant, SHARMIN JALALU, to the best of his ability, and shall to that end execute a bond in the sum of five hundred thousand shillings (T.Shs.500,000/=). G

Order accordingly.

[zRPz]HARUBUSHI SEIF v AMINA RAJABU 1986 TLR 221 (HC)

Court High Court of TAnzania - Tabora
Judge Korosso J

4th August, 1987. A
(PC) CIVIL APPEAL 24 OF 1986
Flynote
Family Law - Rebuttal of marriage - Status of a woman whose marriage has been rebutted - Status of children born B out of a rebutted marriage.
-Headnote
The respondent petitioned before a Primary Court for separation between her and the appellant to whom she C purported to have been legally married. The Court found that the parties had cohabited for fifteen years and four children were born out of their union. The Court was satisfied that the presumption under s.160(1) of the Law of D Marriage Act, 1971, had not been rebutted and granted the petition for separation. The District Court on appeal, agreed with the decision of the Primary Court. The High Court found that the presumption of marriage was rebutted and examined the effect of such rebuttal on the status and rights of the woman and children of a rebutted marriage. E
Held: (i) If the presumption of marriage under s.160(1) of the Marriage Act has been rebutted then under s. 160(2) the woman becomes a deemed legal wife devoid only of the legal right to petition for divorce and separation. F

(ii) the children of such relationship become deemed legitimate children and they need no legitimization.

Case Information
Order accordingly.
Case referred to: G

1. Francis Leo v Paskali Simon Maganga [1978] LRT 22

Ntabaye, for the appellant
[zJDz]Judgment
Korosso, J.: This is an appeal lodged by the Appellant against the decision of the Primary Court of Nyalikungu H in its Civil Case No. 44/86 and that of the District Court of Maswa in its Civil Appeal No. 23/86.
Before the Primary Court, the Respondent petitioned for separation between her and the Appellant by whom she I purported to have been legally married. In the course of the trial it became

obvious that though the Appellant and the Respondent had cohabited as husband and wife for about 15 years A and had even been blessed with 4 children, they hadn't been formally married.

The Primary Court having been satisfied that the Appellant and the Respondent had indisputably lived together for about 15 years, (it) felt satisfied that the presumption under section 160(1) of the Marriage Act hadn't been rebutted. Consequently it B invoked the provisions of section 160(1) of the Marriage Act No. 5/71. The Primary Court granted the petition for separation. The Appellant appealed to the District Court of Maswa. The Respondent also cross-appealed. The District Magistrate dismissed both the Appeal and the Cross-Appeal. C

The Appellant before this Court was represented by the learned Counsel, Mr. Ntabaye an Advocate based at Tabora. In the course of the Appeal, Mr. Ntabaye submitted that the Appellant and the Respondent having not been legally married, the Respondent had no legal right to petition for separation. He submitted that at best, the D Appellant and the Respondent lived in concubinage, Mr. Ntabaye cited the case of Francis Leo v Paskali Simon Maganga [1978] L.R.T. No. 22 decided by Hon Justice Mfalila (as he then was). The cited case propounded on the purport of the provisions of section 160(1) of the Marriage Act. E

In the cited case, the Appellant sued the Respondent and claimed from the Respondent the sum of Shs.2,400/= being payment to be paid by the Respondent for legitimation of the Respondent's five (5) children who were begotten by the Respondent with the Appellant's daughter called Magdalena. The appellant claimed the sum of F Shs.2,400/= under the customs and usage of Wanyamwezi. It would appear that the Respondent and Magdalena had lived in concubinage for a period of over 2 years.

The Hon. Justice Mfalila (as he then was) observed in his judgment on appeal thus: G

Being duly married means going through the forms and procedures as provided for under the provisions of Marrige Act.

The Hon. Judge went on to observe thus: H

When the presumption has been rebutted under the provisions of section 160 of the Marriage Act, the children of the I presumed Marriage are illegitimate. The father of the illegitimate children may legitimate them according to

Customary Law in order to bring them to the paternal side. The Respondent should have either surrendered the five A children or taken legal steps to legitimate the 5 children to bring them to the paternal side.

It is opposite to quote the provisions of section 160 of the Marriage Act. B

160(1) When it is proved that a man and woman have lived together for over two years or upwards in such circumstances C as to have acquired the reputation of being husband and wife, there shall be a rebuttable presumption that they were duly married.

160(2) When the man and woman have lived together in such circumstances which give rise to a presumption provided D for in section 160(1) and such presumption has been rebutted in any Court of competent jurisdiction, the woman shall be entitled to apply for maintenance for herself and every child of the union on satisfying the Court that she did in fact live E together as husband and wife for 2 years or more and the Court shall have jurisdiction to make order or

orders for maintenance and upon an application made therefore by either the woman or the man to grant other reliefs, including F custody of children as it has under this Act to make or grant upon or subsequent to the making of an order for the dissolution of marriage or order for separation as the Court may think fit.

I respectfully agree with the Honourable Judge when he observed that the phrase 'duly married' in section G 160(1) of the Marriage Act means, and indeed should be taken to mean, that only parties concerned who have gone through all the statutory formal procedures as provided for in the Marriage Act No. 5/71. This should, of course, include getting the marriage certificate which crowns all the many preceding formalities. H

But with equal due respect, for compulsive reasons, I do hold different views from those held by the Honourable Judge (as he then was) in the above cited case. In my serious study of section 160(1) and 160(2) of the I Marriage Act which must or need to be read and considered collectively, I am of the settled mind that where a man and woman who have cohabited together in concubinage for over two years or upwards but whose presumption of their having

married has been rebutted, because the man and woman have been proved to have not been duly married; still A the woman assumes a special legal status if she can satisfy a Court of competent jurisdiction that she has in fact lived with the man as man and wife for a continuous period of two years or more. By virtue of the provisions of B section 160(2) of the Marriage Act once the woman has satisfied the Court of her continuous cohabitation with the man then she automatically becomes entitled to claim for maintenance for herself and every child of the union. It is noteworthy that such concubinage acquires the title of a union and the children are referred to as children of C the union. The woman becomes entitled to apply for maintenance and for custody of children. The children of such parties are neither for the maternal side nor for the paternal side. They are under the Marriage Act vested with the status of being a man and woman of the union. Either the woman or the man may apply for custody of D the child or children, and undoubtedly in granting custody to either of the parties, the Court will apply the principles as provided. In other words, the child or children of such union are deemed legitimate children and not illegitimate children. Thus the children of the Appellant and Respondent are deemed legal children.

Again, under the provisions of section 160(2) of the Marriage Act if a woman has satisfied the Court that she has E lived with the man for two years or more; then the Court is statutorily vested with the jurisdiction to grant or make orders to the parties in the same way as it has jurisdiction to make orders consequent on divorce or F separation of the duly married spouses under the provisions of the Marriage Act. Where a woman has proved to the satisfaction of the Court of her having cohabited with a man for two years... woman is only deprived of the right to petition for divorce or separation. Otherwise such a woman has all the rights which a divorced woman G has under the Act. The referred to application of other reliefs which a woman may make would definitely include application for division of property if any which has been acquired by joint efforts. This is good law, intended to emancipate the women and to prevent

their exploitation. As in this case the Appellant and the Respondent are H said to have cohabited together for 15 years. She was 36 years when they started to live together. She has used all her youth while staying with the Appellant. If during the 15 years she contributed her labour, energy and materially towards the acquisition of certain property then the good law must protect her interests what-ever that may be. I

1986 TLR p225

KOROSSO J

There is another reason why section 160(2) of the Marriage Act is of tremendous importance in this country. A There is no doubt that with the enactment of the Marriage Act every Tanzanian contracting a Christian marriage, Muslim marriage, Civil marriage and Customary law marriage was and still is required to contract his/her B marriage according to the express provisions of the Marriage Act. It would be a great surprise if all the people in the rural communities are contracting their marriages in strict compliance with the express provisions of the C Marriage Act. The majority of them are not aware of the existence of the Marriage Act. They purport to marry customarily the way they used to. If the provisions of section 160 is interpreted in the terms of the case of Francis Leo cited 'supra' what will be the legal status of the children of such relationships?

I wish to conclude by saying that if the presumption of marriage provided for in section 160(1) of the Marriage D Act has been rebutted but the woman has satisfied the Court of competent jurisdiction that she in fact cohabited with the man for 2 years and more, then under the provisions of section 160(2) of the Marriage Act the woman E becomes a deemed legal wife devoid only of the legal right to petition for divorce or separation. But at the same time she becomes vested with the legal right to apply for maintenance for herself and the children of the union. The woman also becomes vested with the legal right to apply for custody of the children of the union and some other reliefs which may include division of matrimonial property acquired by joint efforts. F

Secondly, the children of such relationship become deemed legitimate children for whom either the woman or the man may apply for custody. The question of who between the woman and the man should have custody must be G resolved on the principles provided in the Marriage Act. There is no question of legitimation of children begotten of a man and woman who have cohabited together for two years or more in circumstances in which they acquire the reputation of being husband and wife.

Reverting to this case, it is clear that the Respondent and the Applicant having not been duly married in H accordance with the formalities and procedures provided for in the Marriage Act, the Respondent had no legal right whatsoever to petition either for divorce or separation. It was incorrect for the lower Courts to hold that the I Appellant and the Respondent were duly married. But it having been satisfactorily proved that the Appellant and Respondent have lived as husband and wife for about 15 years the Respondent

1986 TLR p226

shall be entitled to file an application for maintenance, for herself, for custody of the 4 or any other children and A also for other reliefs which includes application for division of property for which she may feel she is entitled to a share.
The Primary Court and the District Court having had no jurisdiction to entertain, hear and determine the B purported petition for separation, I declare the proceedings of the lower Courts, null and void. I quash the proceedings and incidental orders. I make no orders as to costs.
Appeal allowed.
1986 TLR p226

[zRPz]HALIFAN ABDALLAH v THE REPUBLIC 1986 TLR 226 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

15th May, 1986. D
MISCELLANEOUS CRIMINAL CAUSE 15 OF 1986
Flynote
Criminal Practice and Procedure - Bail - Whether an offence of robbery with violence is bailable -S.148(5)(e) Criminal Procedure Act, 1985 E
-Headnote
This was an application for bail pending trial under s. 149 of the Criminal Procedure Act, 1985. The accused F were charged with the offence of robbery with violence. The resident magistrate refused them bail arguing that the offence was not bailable under s.148(5)(e) of the Criminal Procedure Act, 1985. The only allegation in the charge was that the accused "did use actual violence" against the victim of the alleged offence. G
Held: (i) Subject to the statutory restrictions contained in s. 148 of the Criminal Procedure Act, 1985, the offence of robbery with violence is bailable;

(ii) from the wording of s.148(5)(e) a person can only be denied bail if the "actual violence" or assault H constituted "a serious assault";

(iii) in the present case it has not been alleged that "actual violence" amounted to "a serious assault."

Case Information
Application granted. I
1986 TLR p227
CHIPETA J
Case referred to A

1. Abdul Nassor v R. 1 TLR (R) 289.

[zJDz]Judgment

Chipeta, J.: On 7th May, 1986, I granted the applicant's application for bail pending trial and reserved my reasons for doing so. B

The applicant and two others stand jointly charged with the offence of robbery c/s 285 and 286 of the Penal Code, in Tabora District Court. When they first appeared before the District Court, the Republic had no objection to bail. However, the learned magistrate remanded them in custody, and in doing so he stated: C

"On second thought I would think a proper interpretation of section 148 of the C.P.A. makes me hesitate to grant bail to the accused." D

From the provisions of section 148 of the Criminal Procedure Act, 1985, it is plain that subject to the statutory restrictions contained in that section, the offence of robbery with violence is bailable. The restriction which the E learned resident magistrate had in mind, it would seem, is paragraph (e) of subsection (5) of the said section which reads:

"(5) A police officer in charge of a police station, or a court before whom an accused person is brought/appears, shall not admit that person to bail if..... F

(e)the act or any of the acts constituting the offence with which a person is charged consists of a serious assault on or threat of violence to another person, or of having or possessing a firearm or an explosive; (Emphasis added). G

In the present case, the question of possession of a fireman or an explosive does not arise as there is no allegation to that effect. Equally, as rightly pointed out by Mr. Mussa, learned state attorney, threat of violence does not H arise either in that it is not alleged that there was threat of violence. The only allegation in the charge is that the applicant and his colleagues "did use actual violence" to the victim of the alleged offence.

From the wording of the provisions under consideration, a person can only be denied bail if the "actual violence" I or assault constituted, in the words of the paragraph, "a serious assault". In other words, it is not every assault or "use of actual violence" that

would deprive an accused person of his general right to bail. The assault must be of a "serious" nature. A

The question then arises: what is meant by the expression "a serious assault"? In my view, those words should be given their natural and ordinary meaning. Those words, in my view, mean an assault that at least causes B serious bodily hurt or harm, though not necessarily grievous harm as defined in section 5 of the Penal Code.

In the present case, it has not been alleged that the "actual violence" amounted to "a serious assault" as defined above. It might have been a mere battery.

On the basis of the foregoing, I take the view that the applicant ought not to have been denied bail on the basis of C the provisions of section 148 (5) (e) of the Criminal Procedure Act, 1985. The learned magistrate, therefore, and with respect, ought to have been guided by general principles applicable in bail applications. In the absence D of any statutory restriction, the test in a bail application is whether the granting of the application will be detrimental to the interests of justice and good order and the keeping of public peace. (See Abdul Nassor v R. 1 T.L.R. (R) 289, at page 293).

Here, the learned state attorney, to whom I am indebted as a result of his lucid submissions, did not object to the E application; and from the applicant's affidavit, I am persuaded that granting the application would not be detrimental to the interests of justice and the keeping of public peace.
It was for the foregoing reasons that I granted the application on terms contained in my order. F
Application allowed.
1986 TLR p228

[zRPz]DEOGRATIAS KATUNDABWIRE v JOVIN LUKA 1986 TLR 228 (HC)

Court High Court of Tanzania - Bukoba
Judge Moshi J

4th March, 1987. H
(PC) CIVIL APPEAL 138 OF 1984
Flynote
Customary Law - Of the Haya - Sale of clan land to a clan member - Whether another clan member may redeem it. I
-Headnote
A clan member duly sold a clan land to a fellow clan member. When another clan member who was not aware of the sale knew about it he sought to redeem the land.
1986 TLR p229
MOSHI J
Held: A clan member has no right to redeem clan land sold by a clan member to another clan member. A
Case Information
Appeal dismissed.
Cases referred to: B

1. Laurean Baitu v Stanslaus Tibenda [1968] HCD 410
2. Lensia Balyagati v Samwel Maganja [1978] LRT n.5.

Malingumu, Rutashobya for the appellant C
[zJDz]Judgment
Moshi, J.:The appellant, Deogratias Katundabwire, successfully brought an action, before the Kanyigo Primary Court, to redeem a clan shamba sold by his brother, Deogratias Mpya, to the respondent, Jovin Luka, without D his notice. That decision was, on appeal to the District Court, reversed, and hence this appeal.
At the hearing of the appeal, the appellant was represented by Mr. Malingumu, learned advocate, whereas the respondent was present, and argued the appeal in person. E
It was established that, the appellant and his brother Deogratias Mpya, the vendor, belong to the same family. Their grandfather is the same, but their fathers are different. The father of

Deogratias Mpya is deceased, F whereas the father of the appellant, Leonard Katundabwire, is the clan head as well as the administrator of the estate of the deceased father of the vendor. The respondent belongs to the same clan, but different family unit (shina).

On 8/11/81 the vendor sold his clan land to the respondent for Shs.15,000/=. The sale, which was in writing G (Exh.B), was sanctioned by the father of the appellant, and witnessed by ten clan members. This, it would appear, was after the father of the appellant had declined to exercise his right of pre-emption. It is conceded that the appellant was absent. He was in Dar es Salaam where he works for gain. On 19/11/1981 he became aware H of the sale. On 23/12/1981 he took to the respondent the purchase price of shs.15,000/= in order to redeem the shamba. The respondent refused to accept the money and, by reason thereof, the redemption suit was then filed on 29/1/1982.

The learned district magistrate allowed the appeal mainly on two grounds - that the notice of the sale, which the I father of the appellant had, was notice to all members of the clan including the appellant, and secondly that as the parties belonged to the same

clan, no right of redemption existed. He relied upon the decision of this court in Laurean Baitu v Stanslaus A Tibenda [1968] H.C.D. 410.

Mr. Malingumu, advocate, has vehemently criticized the decision of the District Court. He has submitted that it B was wrong to presume notice of the sale on the part of the appellant, who was absent at the time of the sale and did not have notice of it, and thus could not exercise his right of pre-emption, he being a nearer relative than the respondent. He argued further that on the authority of Lensia Byalyagati v Samwel Maganja [1978] LRT n.5, C Bahaya clan members are allowed to buy clan land in hands of other clan members.

I would outrightly agree with Mr. Malingumu that the District Court erred in presuming notice of the sale on the part of the appellant. He was not in the village at the time of the sale. He was in Dar es Salaam. It is conceded D that he must have heard of the sale before, and when, it took place because his father had notice was, in the circumstances, clearly wrong. Notice of sale, on the part of the redeemer, in clan land redemption cases generally, is an essential element for purposes of their time limit, and an interested relative, who happens to be E absent at the time of the sale, is entitled to take action without delay whenever he returns (See paras 568 and 569 Customary Law of the Haya Tribe by Cory and Hartnoll). On the evidence, I am satisfied that the appellant did not have notice of the sale for purposes of either to object to it, if he thought he had grounds, or to F exercise a right of pre-emption, if he thought he had one. However, the vital and crucial question which follows is, to me, whether the appellant could redeem the relevant clanland notwithstanding the absence of notice of the sale on his part.

Mr. Malingumu has submitted, and I agree, that clan members are allowed to buy clan land in the hands of other G clan members. In fact this was one of this court's findings in Leonsia Byalyagati's case. Within one clan ancestry members are at liberty to sell to one another immovable property. However, with respect, this right by clan members to sell and to buy clan land within the clan appears to me to be beside the point. That right is H there. It is well

established, and not in dispute. What in this case is, to my mind, at issue is the right of a clan member to redeem clan land sold by a clan member to another clan member.
It is amply established in evidence, which appears to be un-disputed, that the appellant, the respondent and the I vendor, whether as near or distant relatives, belong to the same clan or "paternal
1986 TLR p231
family" as defined under para 557 by Cory and Hartnoll. On account of this, it would appear that para 557 A above which is meant to restrict the disposition of land outside the family is inapplicable. The reason for this, and the good sense in it, is that where a clan shamba is sold to another clan member, the sale becomes within the B clan, and not to an outsider away from the clan, and there is therefore no loss of immovable property to the clan which would give to a clan member right to redeem. This is in line with what this court said, and rightly so in my view, in Lensia Byalyagati's case (supra) and in Laurean Baitu's case (supra). It therefore follows that as the C appellant, the vendor and the purchaser belonged to one clan, the appellant, for reasons given, had no right of redemption. The redemption proceedings before the Primary Court were therefore, on account thereof, incompetent ab initio and, on this ground alone, the appeal must fail. D
For the foregoing reasons, the appeal is, and it is hereby, dismissed in its entirety. The respondent to remain in occupation of the relevant shamba undisturbed. The respondent to have his costs. E
Appeal dismissed
1986 TLR p232

[zRPz]THE REPUBLIC v JUMANNE MOHAMED 1986 TLR 232 (HC)

Court High Court of Tanzania - Dodoma
Judge Samatta J

21st March, 1988. F
CRIMINAL REVISION 1 of 1986
Flynote
Criminal Practice and Procedure - Charges - Substitution of - Charge of unlawful wounding withdrawn and fresh G charge of causing grievous harm substituted - Charge substituted after prosecution witnesses had given evidence - Provisions of s.234 of Criminal Procedure Act, 1985 not complied. H
-Headnote
The accused was charged with unlawful wounding. After the prosecution witnesses had testified the public prosecutor substituted a fresh charge of causing grievous harm. Without complying with the provisions of s.234 I of the Criminal Procedure Act, 1984 the magistrate convicted the

accused as charged and sentenced him to three years' imprisonment. When the matter reached the High Court
1986 TLR p232
SAMATTA J
the learned judge considered the effect of failure to comply with the provisions of s. 234 of the Criminal A Procedure Act, 1984.
Held: Failure to comply with the provisions of s. 234(2)(a) of the Criminal Procedure Act was in the instant case, a serious error capable in law of vitiating the decision arrived at by the trial magistrate. B
Case Information
Order accordingly.
No case referred to. C
Mr. Rutagwelera for the Republic
[zJDz]Judgment
Samatta, J.: On September, 24, 1984, the accused in this case, Jumanne s/o Mohamed, was charged before D the District Court of Kondoa District with unlawful wounding, contrary to s. 228 of the Penal Code, it being alleged in the particulars of offence that "on 20th day of September 1985, at about 21.00 hrs at Mouroroma E Village, within the District of Kondoa, Dodoma Region, [he] unlawfully [wounded] one Mwanaidi d/o Omary and caused him (sic) to suffer several wounds to wit he cut him (sic) with a knife on his (sic) left arm". To this charge the accused pleaded as follows:

"It is true I cut her on her arm with a knife" F

The plea was entered as a plea of guilty to the charge, but the prosecutor applied for postponement of the outlining of the facts of the case until the complainant, who was said to be seriously sick in a hospital, felt better. G The case came up for mention on several dates. On February 26, 1986, when the accused was reminded of the charge, his response was:

"It is true but I was under the influence of drunkenness." H

The learned magistrate entered this reply as a plea of not guilty, and a trial commenced immediately thereafter. On 13th March, 1986, after the third witness for the prosecution had left the witness stand the following, if the record of the case is a faithful reproduction of what took place at the trial, transpired in the court room: I
1986 TLR p233
SAMATTA J

"PP: I close prosecution case with PW 3 while I substitute herewith new charge sheet. A

Court: New charge [of causing grievous harm, contrary to s. 225 of the Penal Code] substituted, read over and explained to accused who pleads thus: B

Accused: It is true I cut complainant with a knife around her left upper arm and I was mistaken.

Entered as a plea of guilty to the charge for accused.

PP: I close prosecution case with PW3.

RULING C

Accused has still a case to answer in spite of his admission at this stage.

Court: Accused is addressed in terms of section 231 (a) of the Criminal Procedure Act. D

Accused: I elect to give defence evidence on oath.

THE CASE FOR THE DEFENCE

DW 1: Accused Jumanne Mohamed, Zaramo, Islam, age 30 years, peasant farmer of Kondoa, sworn and states: E

On that day, I did not know what I committed. I was confused due to drunkenness. I took much pombe on that day. I have no more to say. F

XXD PP: Insp. Mhando I once ran mental (sic) in 1979, but I was treated locally.

Section 210(3) of the Criminal Procedure Act complied with.

Accused:I have no witness to call. I close my defence". G

On March 14, 1986, the learned trial magistrate delivered his judgment. He convicted the accused as charged and sentenced him to three years' imprisonment. The sentence is subject to confirmation by this Court. H

I decline to confirm the sentence because, in my considered opinion, the peg - the conviction - on which it hangs cannot be sustained in law. The conviction is unsound in law because, firstly, the learned trial magistrate did not fully comply with the provisions of s. 234(2) of the criminal Procedure Act, hereinafter referred to as "the Act", I as read with subsection (1) of the said section. In so far as is relevant to this case, section 234 reads as follows:

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SAMATTA J

234-(1) Where at any stage of a trial, it appears to the court that the charge is defective, either in substance or form, the A court may make such order for alteration of the charge either by way of amendment of the charge or by substitution or addition of a new charge as the court thinks necessary to meet circumstances of the case unless, having regard to the B merits of the case, the required amendments cannot be made without injustice, and all amendments under the provisions of this sub-section shall be made upon such terms as the court shall deem just.

(2) Subject to sub-section (1), where a charge is altered as aforesaid: C

(a) the court shall thereupon call the accused person to plead to the altered charge; and

(b) the accused may demand witnesses or any of them be recalled and give evidence afresh or be further D cross-examined by the accused or his advocate and in such last mentioned event, the prosecution shall have the right to examine such witness on matters arising out of such further cross-examination. E

The accused in the instant case was given no opportunity to exercise his rights under subsection 2(b) of the above section. In my opinion it is not an answer to say that the accused did not demand to exercise those rights. How can one demand to exercise a right the existence of which one is not aware of? Where the accused before a F court of law is a layman or a lawyer who is not likely to know (sufficiently) the provisions of section 234(2)(b) of the Act, the court is under duty, in the interest of justice, to inform the accused of his rights under the subsection and find

out from him which right, if any, he proposes to exercise. The accused's reply should be reflected on G the record of the case. The failure on the part of the learned trial magistrate to comply with s.234(2) (b) of the Act in the instant case was, in my settled opinion, a serious error, capable in law of vitiating the decision he arrived at the end of the trial.
Secondly, the learned trial magistrate does not appear to have appreciated that the accused was raising the H distinct defences - the defence of drunkenness and that of insanity. In his judgment the learned magistrate dealt with only the former. He was as silent as the grave on the defence of insanity. Bearing in mind that apparent absence of motive for the attack on the complainant and taking into I
1986 TLR p235
consideration the unchallenged assertion by the accused that in 1979 he suffered a mental disease, the defence of A insanity raised by the accused deserved serious consideration by the learned trial magistrate. Every defence an accused person puts before a court of law ought to be considered by the court.
For the reasons I have given, I have reached the conclusion that the accused's conviction cannot be left to stand. B It is quashed and the sentence imposed thereon is set aside. Since the accused must have finished serving that sentence, the quashing of the conviction will be of no immediate practical value to him, but it is important that the conviction be expunged from the record. C
Order accordingly.
1986 TLR p235

[zRPz]SADIKI ATHUMANI v THE REPUBLIC 1986 TLR 235 (HC)

Court High Court of Tanzania - Dodoma
Judge Samatta J

15th April, 1988. E
(PC) CRIMINAL APPEAL 5 OF 1985
Flynote
Natural justice - Principles of - Appellant not given an opportunity to be heard at the hearing of his appeal - Grievous injustice.
-Headnote
The appellant had been convicted by a Primary Court. On appeal to the District Court he was not given an F opportunity to be heard. The judgment by the Primary Court which was prejudicial to his interests was upheld. On further appeal
Held: (i) The requirement that a party to proceedings must be given the opportunity to state his views is a G fundamental principle of natural justice;

(ii) once an appeal is admitted to hearing, the appellant is, regardless of the chances of success of the said appeal, entitled to be heard against the judgment, decision or order he has appealed against and must be given the opportunity to exercise that right. H

Case Information

Order accordingly.

Cases referred to: I

1. Tellis and Others v Bombay Municipal Corporation and others [1987] LRC (Const) 315.

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SAMATTA J

2. Goldberg v Kelly 397 US 254 A
3. Joint Anti-facist Refugee Committee v McGrath 341 US 123
4. S.L. Kapoor v Jagmohan [1981] 1 SCR 746.
5. National Textile Workers' Union and Others v Ramakrsihnan and Others [1980-4] LRC (Comm)729. B

Mwambe and Njulumi, for the Republic

[zJDz]Judgment

Samatta, J.: This is a second appeal. The appellant was convicted, together with another person who has C elected not to appeal, of cattle theft, contrary to s. 265 and 268 of the Penal Code. He and his co-accused were each sentenced, in accordance with s. 5(c) of the Minimum Sentences Act, 1972, to five years' imprisonment. Their appeals to the District Court of Iramba District were unsuccessful. D

The District Court determined the appeals without giving the appellants, who in their respective Petitions of Appeal did not indicate that they did not like to be present at the hearing, the opportunity to be heard. Quite right, Mr. Mwambe, for the Republic, conceded that the denial of the opportunity to be heard was a serious E error in law. It is not clear from the record of the case why the learned magistrate who "heard" the appeals strayed into that error. One hopes that it was not because he thought that the appeals were unarguable. I express that hope because, as I understand the law, once an appeal is admitted to hearing, the appellant is, F regardless of the chances of success of the said appeal, entitled to be heard against the judgment, decision or order he has appealed against and must be given the opportunity to exercise that right. Grievous injustice is done to a person who is not given the opportunity to be heard at the hearing of his appeal against a judgment which is G prejudicial to his interests. The requirement that a party to proceedings must be given the opportunity to state his views is a fundamental principle of natural justice. The true legal position regarding the purport and implications of that right was, if I may respectfully say so, correctly stated by the Supreme Court of India in Tellis and Others v Bombay Municipal Corporation and Others [1987] LRC (Const) 351. Speaking through H Chandrachud, C.J., the Court said at pp 376-377:

The proposition that notice need not be given of a proposed action because there can possibly be no answer to it, is I contrary to the well-recognised understanding of the real import of the rule of hearing. That proposition overlooks that

justice must not only be done but must manifestly be seen to be done and confuses one for the other. The A appearance of injustice is the denial of justice. It is the dialogue with the person likely to be affected by the proposed action which meets the requirement that justice must also be seen to be done. Procedural safeguards B have their historical origins in the notion that conditions of personal freedom can be preserved only when there is some institutional check on arbitrary action on the part of public authorities. (see Kadish, "Methodology and Criteria in Due Process Adjudication - A Survey and Criticism" (1957) 66 Yale LJ 319, 340). The right to be C heard has two facets: intrinsic and instrumental. The intrinsic value of that right consists in the opportunity which it gives to individuals or groups, against whom decisions taken by public authorities operate, to participate in the D proceedings by which those decisions are made, an opportunity that expresses their dignity as persons. [Goldberg v Kelly 397 US 254, 264-165 (1970) (right of the poor to participate in public processes).]

Whatever its outcome, such a hearing represents a valued human interaction in which the affected person E experiences at least the satisfaction of participating in the decision that vitally concerns her, and, perhaps the separate satisfaction of receiving an explanation of why the decision is being made in a certain way. Both the F right to be heard from, and the right to be told why, are analytically distinct from the right to secure a different outcome; these rights to interchange express the elementary idea that to be a person, rather than a thing, is at least to be consulted about what is done with one. Justice Frankfurter captured part of this sense of procedural G justice when he wrote that the "validity and moral authority of a conclusion largely depends on the mode by which it was reached.... No better instrument has been devised for arriving at truth than to give a person in jeopardy of serious loss notice of the case against him and opportunity to meet it. Nor has a better way been H found for generating the feeling, so important to a popular government, that justice has been done" Joint Anti-fascist Refugee Committee v McGrath 341 US 123, 171-72 (1951). At stake here is not just the much-acclaimed appearance of justice but, from a perspective that treats process as intrinsically significant, the I very essence of justice. (See American Constitutional Law by Laurence H. Tribe, Professor of Law, Harvard University 1978 Edn., p. 593).

The instrumental facet of the right of hearing consists in the means which it affords of assuring that the public rules A of conduct, which result in benefits and prejudices alike, are in fact accurately and consistently followed. In an earlier case, S L Kapoor v Jagmohan (1981 1 SCR 746, cited in Tellis' case (supra), the same Court, speaking through Chinnappa Reddy, J., said at p. 766: B

In our view the principles of natural justice know of no exclusionary rule dependent on whether it would have made any difference if natural justice had been observed. The non-observance of natural justice is itself prejudice to any man and C proof of prejudice independently of proof of denial of natural justice if necessary. It ill comes from a person who

has denied justice that the person who has been denied justice is not prejudiced. (the underscoring is supplied)

Can courts say natural justice need not be observed by them as they know how to render justice without D observing natural justice? In the Indian case of National Textile Workers' Union and Others v Ramakrsihman and Others [1980-84] LRC (Comm) 729, Reddy, J, posed that question and proceeded to E answer it, at p. 749, as follows:

It will surely be a travesty of justice to deny natural justice on the ground that Courts know better. There is a peculiar and F surprising misconception of natural justice, in some quarters, that it is, exclusively, a principle of administrative law. It is not. It is first a universal principle and, therefore, a rule of administrative law. It is that part of the judicial procedure G which is imported into the administrative process because of its universality. "It is of the essence of most systems of justice - certainly of the Anglo-Saxon System - that in litigation both sides of a dispute must be heard before decision, "Audi alteram partem" is as much a principle of African as it is of English legal procedure; a popular Yoruba saying is: H wicked and iniquitous is he who decides a case upon the testimony of only one part to it (T.O. Elias, The Nature of African Customary Law). Courts even more than administrators must observe natural justice.

I respectfully concur in these observations and desire to adopt them as representing my views. In the case now I before me, clearly

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SAMATTA J

the learned magistrate strayed into a grave error in law in not giving the appellants the opportunity to be heard. A There is no provision in section 20, 21 or 34 of the Magistrates' Courts Act, 1984 (hereinafter referred to as "the Act") - the sections governing the appellate jurisdiction of the District Courts - which empowers a District B Court to dispense with the observance of natural justice. On the contrary, the right of hearing, as far as criminal appeals heard in the District Courts are concerned, is statutorily recognised. The recognition is embodied in s. 34(2) of the Act. The subsection reads as follows:

(2) An appellant or other party, whether in custody or not, shall be entitled to be present at the hearing of an appeal under C this part:

Provided that where an appellant or other party is in custody, his right to be present at the hearing of the appeal D shall, unless the court directs that his presence is desirable for the due determination of the appeal in which case the expenses of transferring him to and from the place to hearing shall be borne by the Republic, be subject to his E paying all expenses incidental to his transfer to and from the place where the court sits for the determination of the appeal.

The right of presence at the hearing of an appeal is not confined to physical presence; it includes the right to F participate in the proceedings in question by, inter alia, making submissions on issues raised by the appeal with a view of assisting the Court to reach a just and correct decision. As rightly pointed out in Tellis' case (supra), the G point of the right of hearing is "less to assure participation than to use participation to assure accuracy." The right is a very important one and

the denial of it is a grave error which vitiates the proceedings in the District Court. The error is, in my judgment, incurable under the provisions of s. 37(2) of the Act.
For the reasons I have given, I allow the appeal and set aside the decision of the District Court in so far as it H relates to the appellant. Exercising my revisional jurisdiction, I also set aside the District Court's decision dismissing the appellant's co-accused's appeal before that court. It is ordered that the two appeals before the District Court be heart de nove by another magistrate of competent jurisdiction. I
Order accordingly
1986 TLR p240

[zRPz]ABDILLAH JUMA v SALUM ATHUMANI 1986 TLR 240 (HC)

Court High Court of Tanzania - Dodoma
Judge Samatta J

12th July, 1988. A
(PC) CIVIL APPEAL 74 OF 1985
Flynote
Civil Practice and Procedure - Suits - Representative suits - Suit instituted in a Primary Court by a person other than a B relative or member of the household - Identities of those represented unknown - Whether representative action may be instituted in Primary Courts - Whether identities of those represented must be known. C
-Headnote
The respondent filed a representative action in a Primary Court. He was not a relative of those represented and he did not disclose their identities. The High Court considered whether a representative action by a person other D than a relative may be instituted in a Primary Court. The correct procedure to be followed in such suits was also considered.
Held: (i) Since a Primary Court can, and is bound to, exercise its civil jurisdiction in accordance with 0.1 r. 8 of E the Civil Procedure Code, 1966, it follows that a representative action can, in law, be instituted before it;
(ii) although persons on whose behalf a representative suit is instituted are not parties to the proceedings it is necessary that their identities be known to the Court. F
Case Information
Order accordingly.
No cases referred to .
[zJDz]Judgment G
Samatta, J.:This is an appeal from a decision of the District Court of Kondoa District whereby the decision of the Primary Court of Haubi dismissing the respondent's claim for recovery of possession of a piece of land measuring one and a half acres was reversed. H

The respondent purported to institute the civil proceedings on his own behalf and on behalf of ten other persons. It was his case that the piece of land in question was the property of the ten persons and himself and that they used it for grazing purposes, but the appeallant, without their consent, had cultivated it. The ten persons were I said to be the respondent's fellow villagers, but their

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SAMATTA J

identities were not disclosed in the pleadings or during the trial. The appellant contested the claim, asserting that A the piece of land was his property since 1981 when his father gave it to him. The Primary Court held that the respondent had not established his case and accordingly dismissed the suit. The learned District Magistrate was B unable to share that view. He allowed the respondent's appeal and entered judgment for him. In the course of his judgment he said, among other things:

Indeed, the case for the plaintiff has merits. The plaintiff is claiming communal land which respondent has cultivated on C his own accord. There is evidence that the land in dispute is communal one for use of the masses and not for individuals as alleged by the respondent. According to PW4 an elderly witness, appellant was appointed to claim on D behalf of other villagers - some of whom attended this court during hearing of the appeal.

It is therefore in compliance with section 31(2) of the M.C.A. No. 2 of 1984 which for ease of reference states, I quote: E

31(2) Subject to the provisions of subsection (1) and (3) of this section and to any rules of court relating to the representation of parties, a Primary Court may permit any relative or any member of the household of any party to any F proceeding of a Civil nature, upon the request of such party, to appear as and act for such party.

With respect to the learned District Magistrate, the provisions he quoted are those of s. 33(2), and not of s. G 31(2), of the Magistrate's Court Act, 1984. The provisions were plainly inapplicable to this case. No question of representation by a relative arose in this case. What the respondent purported to do in the Primary Court was H to institute and prosecute a representative action. Could he in law do so and, if he could, did the court follow the right procedure? These are the questions which I ask myself in this matter and which I shall endeavour to answer. In this Court, the Resident Magistrate's Court and the District Court a litigant can, with the leave of the court, institute a representative suit. The authority for doing so is embodied in Order 1 Rule 8 of the Civil Procedure Code, 1966 (hereinafter referred to as "the Code"), which reads as follows: I

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SAMATTA J

8.-(1) Where there are numerous persons having the same interest in one suit, one or more of such persons, with A permission of the court, may sue or be sued, or may defend, in such suit, on behalf of or for the benefit of all persons so B interested. But the court shall in such case give, at the plaintiff's expense, notice of the institution of the suit to all such persons

either by personal service or, where from the number of persons or any other cause such service is not reasonably practicable, the public advertisement, as the court in each case may direct. C

(2) Any person on whose behalf or for whose benefit a suit is instituted or defended under sub-rule (1) may apply to the court to be made a party to such suit.

There are no provisions in the Magistrates' Court (Civil Procedure in Primary Courts) Rules, 1964 (whose D application has been saved by s. 72(3) of the Magistrates' Courts Act, 1984, and which hereinafter will be referred to as "the Rules"), which are analogous with these provisions. Does the omission to incorporate in the E Rules such provisions deny a Primary Court the right to permit a party to institute before it a representative suit? I do not think so. In my view, the situation is taken care of by s. 6 of the Judicature and Application of Laws Ordinance (Chapter 453). As amended by the Magistrates' Courts Act, 1963, that section is couched in the following language: F

(6) Subject to the provisions of any written law and to the limits of its jurisdiction, a magistrate's court shall exercise its jurisdiction in accordance with the laws with which the High Court is required by this Ordinance to exercise its jurisdiction G and with such other laws as shall be in force in Tanganyika from time to time and applicable to the proceedings before it, but no magistrate's court shall exercise any Jurisdiction or powers that are by any such law conferred exclusively on the High Court as such or on a court of record. H

The laws with which the High Court is required by the Ordinance to exercise its jurisdiction are described in section 2 of the said Ordinance, which reads as follows: I

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SAMATTA J

2-(2) Subject to this Ordinance, the jurisdiction of the High Court shall be exercised in conformity with the written laws A which are in force in Tanganyika on the date on which this Ordinance comes into operation (including the laws applied by this Ordinance) or which may hereafter be applied or enacted... (The ordinance came into operation on December B 9,1961).

It is my considered view that a Primary Court can, and is bound to, exercise its civil jurisdiction in accordance C with O.1., r. 8 of the Code. It follows from this that the Haubi Primary Court could in law permit the respondent in this appeal to institute before it a representative action. But was the procedure which that court adopted right? I think not. Although it is perfectly correct to say that persons on whose behalf a representative suit is instituted D are not parties to the proceedings, it is necessary that their identities be known to the court. The necessity arises from two principal reasons. Firstly, in terms of O.1 r 8 of the Code, the court is under duty to give notice E of the institution of the suit to all such persons. Secondly, the doctrine of res judicata applies to all such persons. Thus, none of them can institute fresh proceedings for the same relief. As already pointed out, the identities of the ten persons on whose behalf the respondent purported to institute the proceedings in the Primary Court were not disclosed to the court. It was not enough in law to disclose that those persons were the respondent's fellow villagers. F

In my view, the errors into which the Primary Court strayed in this case are so serious as to vitiate the proceedings conducted before it. I would, therefore, allow the appeal and set aside the decisions of both courts below.
The respondent is at liberty to institute proper proceedings before the Primary Court against the appellant, but if G he does so, the case should be heard by another magistrate of competent jurisdiction and a new set of assessors, and no fresh fees should be demanded from him. The appellant will have his costs in this Court as well as in the two courts below.
Order accordingly
1986 TLR p244

[zRPz]JULIA MAZENGO v JACKSON LEGANGA 1986 TLR 244 (HC)

Court High Court of Tanzania - Dodoma
Judge Samatta J

15th September, 1987. A
(PC) MATRIMONIAL CIVIL APPEAL 1 of 1986
Flynote
Family Law - Divorce - Grounds - Cruelty - What amounts to cruelty. B
-Headnote
The appellant petitioned for divorce before a Primary Court on the ground that quite often the respondent used to subject her to violence. The court granted the divorce after being satisfied that the marriage had broken down C irreparably. The District Court reversed the decision of the Primary Court on the ground that the ill-treatment to which the appellant was subjected was reasonable tear and wear of married life. It was in evidence that the respondent assaulted the appellant on three occasions. On one occasion the assault was perpetrated when she was nine months pregnant. D
Held: The Primary Court was right, when these assaults are considered in the light of the general atmosphere prevailing at the matrimonial home, to hold, as it did, that the parties' marriage had irreparably broken down. E
Appeal allowed.
Case referred to:
1. McEwan v McEwan (1946) 108 Sol. Journ. 198 F
[zJDz]Judgment
Samatta, J.: This is an appeal from a decision of the District Court of Mpwapwa District whereby a decision of the Primary Court of Zoissa dissolving the parties' marriage was set aside. G
Having given the case anxious and, I hope, careful consideration, I have reached the settled opinion that the appeal must be allowed. The appellant based her prayer for a decree of divorce on the ground that quite often the respondent used to subject her to violence. In his evidence the respondent asserted that he beat up the H appellant only on one occasion; he asserted that

he did so because she provoked him. The Primary Court analysed the evidence at length and came to the conclusion, among others, that the appellant had established that the respondent had assaulted her on three (separate) occasions. The district Magistrate was unable to uphold I this finding.

1986 TLR p245

SAMATTA J

In his opinion, the appellant had proved only two instances of assault. The magistrate went on to say: A

... The basic question in this case was whether: If a husband is guilty of assaulting his wife twice, would that (on its own) B entitle a court to hold that the marriage has irreparably foundered and consequently tear the marriage vows apart? In my considered view, I think it would not. Admittedly, no persons has any right to assault his or her spouse - (although s. C 66 of the Act speaks of the infliction of corporal punishment). However, I do not think that if a person is found guilty of assaulting his spouse twice, and such assaults are not serious, that would make a court of law conclude that the marriage has irreparably broken down. As it was rightly observed by Lord Denning, L.J. (as he then was) Married couples D have to put up with all vexations, the quarrels, and the troubles which are ordinary incidents of married life. They have taken each for better and for worse. They must put up with temperament and defects of character of each other. But there E may come a time when defects of character or temperament may be such as to amount to cruelty, but it all depends on the facts of the (See the case of Mc Ewan v Mc Ewan (1946) 108 So. Jour. 198). Similarly, it is common ground to expect misunderstanding in the married life - which may culminate in person assaulting his or her spouse. If such incidents F occur - and a person twice assaults his or her spouse - I do not think that that alone would be sufficient to justify a reasonable tribunal to conclude that the marriage vows have been torn apart beyond repair. A marriage bond or contract G (for that matter) - sanctity as it is should not be set aside lightly; in the absence of evidence that the same has foundered beyond repair.

While I entirely agree with the District Magistrate that a marriage bond should not be set aside lightly, I am unable H to share his view that the Primary Court strayed into an error in holding, as it did, that the appellant had established that she had been subjected to violence on three occasions. The Primary Court's finding was founded upon the evidence of the appellant as corroborated by the testimony of Thadayo Mkoi, a Church I Councillor, who told the trial court that the respondent admitted before the Church Council to have assaulted the appellant on three occasions. I also disagree

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SAMATTA J

with the District Magistrate on his finding that the parties' marriage has not irreparably broken down. There can A be no doubt that at least on two of the three occasions the assaults were serious ones. One of those occasions was referred to by a member of a local Reconciliation Board, Afoniso Shauri. The witness told the trial court this

Nakumbuka mdai ndiye aliyekuja kushitaki kwamba amepigwa na Bwana wake (mdaiwa). Bwana wake akaitwa akaja B hapo akakana kwamba hakumpiga ikabidi huyu mdai apate barua aje kwenye hospitali alivyokuja akachunguzwa C akaonekana alipata maumivu kwenye mkono wa kulia na alivimba kwenye Bega na jicho la mkono wa kulia lilikuwa lekundu ndipo hapo akakubali mdaiwa kwamba kweli alimpiga mdai...

The second occasion was when, according to the appellant's evidence (which was not challenged on the point), D the assault was perpetrated when the appellant was nine months pregnant. In my opinion, the Primary Court was right, when these assaults are considered in the light of the general atmosphere prevailing at the matrimonial home (described by the appellant in her evidence and to a limited extent admitted by the respondent), to hold, as E it did, that the parties' marriage had irreparably broken down. The ill-treatment which the respondent has been subjecting the appellant to cannot, in my considered opinion, be described as the reasonable wear and tear F of married life. The law does not expect a wife to put up with the kind of ill-treatment the respondent has been subjecting the appellant to. I would allow the appeal.

The appeal is allowed, the decision of the District Court is recalled and that of the Primary Court restored. The appellant will have her costs in this Court as well as in the two courts below. G

Appeal allowed.

1986 TLR p247

[zRPz]CHIKUMBI CHILOMO v MADAHA MGANGA 1986 TLR 247 (HC)

Court High Court of Tanzania - Dodoma

Judge Ruhumbika J

27th May, 1987. A

(PC) CIVIL APPEAL 14 OF 1986

Flynote

Civil Practice and Procedure - Attachment - A person's head of cattle attached to satisfy a compensation order against B his brother - Attachment unlawful.

-Headnote

The respondent sued the appellant for recovery of 17 heads of cattle unlawfully seized by the appellant to satisfy C a compensation order against the respondent's brother

Held: It is against general ideas of justice that a man should suffer or be punished directly either in person or in D property for some wrong which he has not done himself.

Case Information

Appeal dismissed. E

Case referred to:

1. Gwao bin Kilimo v Kisunda bin Ifuti 1 TLR (R) 403.

[zJDz]Judgment

Ruhumbika, J.:This is a second appeal. The appellant herein lost an appeal at the Mpwapwa District Court and therefore has appealed before this court. F

The respondent, Madaha Mganga, successfully sued the appellant in the Mpwapwa Urban Primary Court for recovery of 17 head of cattle unlawfully seized from the respondent by the appellant.

The undisputed facts leading to this case are that one person called Yona Mganga was convicted by the G Mpwapwa District Court [in Crimininal Case No. 28 of 1984] for having burgled the appellant's house and to have stolen therefrom property of the appellant. He was sent to prison for up to three years, and was also H ordered to pay compensation to the appellant. In execution of this order for compensation, the appellant went to attach some 17 head of cattle from the respondent, simply because he claimed that the respondent was a brother to Yona Mganga The respondent objected to this unlawful attachment, and the Urban Primary Court of Mpwapwa found for him. The appellant was ordered to return the 17 head of cattle to the respondent. I

1986 TLR p248

Dissatisfied with the decision of the Primary Court, the appellant went to the District Court of Mpwapwa on A appeal. He lost the appeal. Before this court in his oral submissions as well as in his memorandum of appeal, the appellant still laboured under the illusion that the respondent was responsible for the wrongs of Yona Mganga, as B the two are brothers. The appellant has not in any event been able to substantiate that the animals in question belonged to Yona Mganga and not to the respondent.

This appeal has no merit and must therefore fail. As was rightly held in that old case of Gwao bin Kilimo v. C Kisunda bin Ifuti 1 T.L.R. (R), 403 (at p. 405): "It is against general ideas of justice that a man should suffer or be punished directly either in person or in property for some wrong which he has not done himself". In that case [Criminal Revision No. 1 of 1938] Gwao objected to the attachment of his two heads of cattle by Kisunda in execution of a decree passed against his son Mange. The High Court held that the cattle were wrongly seized D and were ordered to be restored to Gwao.

The respondent has no obligation whatsoever in law to have his 17 heads of cattle attached in order to satisfy a compensation order made against Yona Mganga, simply because the two were brothers. This would be against the general ideas of justice. E

It is for the reasons above that the appeal is dismissed with costs.

Appeal dismissed.

1986 TLR p248

[zRPz]THE REPUBLIC v KABULA MHOJA 1986 TLR 248 (HC)

Court High Court of Tanzania - Tabora

Judge Chipeta J

23rd December, 1987. G
CRIMINAL REVISION 12 OF 1987
Flynote
Criminal Practice and Procedure - Sentencing - Accused first offender and readily pleaded guilty to the charge - Accused a very sadistic woman - Whether accused deserves leniency H
-Headnote
The High Court exercising its revisional jurisdiction considered whether or not the accused, a very sadistic I woman, deserved a lenient sentence. The woman broke both arms of a child aged four months using her own hands.
1986 TLR p249
CHIPETA J
Held: The conduct of the accused is so reprehensible as to attract a sufficiently deterrent sentence; for she is A clearly a very sadistic woman.
Case Information
Order accordingly. B
No case referred to.
[zJDz]Judgment
Chipeta, J.: This matter was admitted for revision on it appearing to this court that the sentence was C manifestly inadequate, and on perusal of the record of the trial court, this court ordered that the convict, Kabula d/o Mhoja, be called upon to show cause why the sentence should not be enhanced.
The background of the matter, in brief, is that the accused pleaded guilty to a charge of causing grievous bodily D harm c/s 225 of the Penal Code. She was convicted on her own plea of guilty and was sentenced to four (4) years imprisonment.
The facts which the accused admitted were as follows: the accused's husband has a concubine, and there is an E issue of that concubinage, a child named Masele Shilungu the victim in this case. On the day of the incident, the accused went to her husband's concubine and requested her to allow the accused to play with the child. The accused then took away the child to her house where driven by morbid jealousy, she broke the child's both arms by using her own hands. The child was then aged four months. F
In mitigation, the accused said she acted out of jealousy because her husband, with whom she has no child, was neglecting her because of his affairs with his concubine. She added that she has two children from her former marriage.
Before this court, the accused pleaded that the sentence should be enhanced and that she is 25 years old. G
It is certainly true that as a first offender and one who readily pleaded guilty to the charge, the accused deserved leniency. But the conduct of the accused is so reprehensible as to attract a sufficiently deterrent sentence, for she is clearly a very sadistic woman. H
For these reasons, I hereby set aside the sentence imposed on her by the trial court and substitute therefore a sentence of five (5) years imprisonment.
Order accordingly

1986 TLR p250

[zRPz]SALMIN MOHAMED v ABDU MOHAMED 1986 TLR 251 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mnzavas JK

8th November, 1988. A
(PC) CIVIL APPEAL 41 OF 1986
Flynote
Administration of Estates - Jurisdiction - House built on registered land - Whether Primary Court has jurisdiction - B Magistrate's Courts Act, 1984, s. 18(1)
Headnote
A Primary Court heard a case involving, and granted letters of, administration of estate. The subject matter of C the dispute between the parties was a house built on registered land. When the case reached the High Court the learned Judge considered whether the Primary Court had jurisdiction over the case. D
Held: (i) In view of the provisions of s. 18 (1) of the Magistrate's Courts Act, 1984 no Primary Court shall have jurisdiction in any proceedings affecting the title to or any interest in land registered under the Land Registration Ordinance;
(ii) the Ilala Primary Court had no jurisdiction to hear the case. E
Case Information
Order accordingly.
Cases referred to: F
1. Mohamed Yusufu v Tunda Kassim [1968] HCD 487
2. Bibi Makongoro v Issa [1970] HCD 192
Rahim, for the appellant
Kesaria, for the respondent G
Editorial Note: According to recent judicial developments this decision is no longer the law. See Sholastika Benedict v Martin Benedict, Civil Appeal 26 of 1988, Court of Appeal of Tanzania. H
[zJDz]Judgment
Mnzavas, J.K.: The appellant, Salmini Mohamed applied for letters of administration of his deceased mother's property namely a house built on a plot along Kilwa Street, Ilala in Dar es Salaam. The respondent Abdul Mohamed filed objection proceedings arguing that the house belonged to his I
1986 TLR p251
MNZAVAS JK
deceased father and that he was the proper person to administer the estate. A
After hearing evidence from both sides the Primary Court - (Ilala Pr. Court Administration case No. 9/86) by a B majority of votes gave judgment in favour of the appellant and ordered that he

be granted letters of administration of the estate. The Primary Court magistrate disagreed with the majority finding of his two assessors and forwarded the record to the District Court giving his reasons why he differed with the finding of the assessors.

After perusal of the evidence in the Primary Court the District Court concurred with the view of the Primary C Court magistrate that the two assessors erred in holding that the appellant was the proper person to administer the estate and accordingly reversed the majority finding of the Primary Court and gave letters of administration to the present respondent. D

The appellant has now appealed to this court against the decision of the District Court. Before this court Mr. Rahim who advocated for the appellant argued that the evidence before the Primary Court amply showed that E the house belonged to appellant's deceased mother and that he was the right person to administer the estate. It was Mr. Rahim's submission that the District Court erred in reversing the majority decision of the Primary Court. It was also argued that there was evidence that the house was registered in the name of appellant's deceased mother.

In rebuttal Mr. Kesaria, learned counsel for the respondent, told the Court that the appellant only produced a F photo-stat copy of a document purporting that her deceased mother owned the house; that the respondent produced the original document to prove that his deceased father owned the house. Mr. Kesaria asked the court to dismiss the appeal as incompetent with costs. G

There was undisputed evidence that the house, the subject matter of the dispute between the parties, is built on a registered land. It is built on Plot No. 77 Block C Kilwa Street House No. 25 at Ilala in Dar es Salaam.

That being the position, and in view of the provisions of section 18(1)(i) of the Magistrates Courts Act 1984 H which say inter alia "that no Primary Court shall have jurisdiction in any proceedings affecting the title to or any interest in land registered under the Land Registration Ordinance...", the Ilala Primary Court had no jurisdiction to I hear the case. That this is the law is also evident from the decision of this court in (Mohamed Yusufu v Tunda Kassim [1968]H.C.D. 487 where it was held, inter alia, that "once the land

is registered, the Primary Court has no jurisdiction". See also the decision in Bibi Makongoro v Issa [1970] H.C.D. 192.

The hearing of this case by the Primary Court was a nullity ab initio and consequently the decision of the District Court is of no consequence as it has no leg to stand on. The parties are advised to seek remedy in the District Court or the High Court depending on the value of the estate. I make no order as to costs.

Order accordingly.

Chairman
The Hon. Mr. Justice F.L. NYALALI,
Chief Justice, Court of Appeal Tanzania
Chief Editor
Prof. L.P. SHAIDI, Faculty of Law
University of Dar es Salaam
Editors
The Hon. Mr. Justice A. RAMADHANI,
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The Hon. Mr. Justice K.S.K. LUGAKINGIRA
High Court of Tanzania
Mr. M.A. LAKHA Advocate, High Court of Tanzania
Mr. E.L.K. Mwipopo, Director of Public Prosecutions
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SCOPE OF THE SERIES

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CITATION

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5.	The Hon. Mr. Justice K.S.K. Lugakingira	Puisne Judge

6. The Hon. Mr. Justice E.W. Katiti Puisne Judge
7. The Hon. Mr. Justice B.D. Chipeta Puisne Judge
8. The Hon. Mr. Justice N.M. Mushi Puisne Judge
9. The Hon. Mr. Justice W. Maina Puisne Judge
10. The Hon. Mr. Justice J.A. Mroso Puisne Judge
11. The Hon. Mr. Justice L.J.R. Chua Puisne Judge
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13. The Hon. Mr. Justice F. Munyera Puisne Judge
14. The Hon. Mr. Justice R.J. Ruhumbika Puisne Judge
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19. The Hon. Mr. Justice C. Mtenga Puisne Judge
20. The Hon. Mr. Justice H.J. Mkatte Puisne Judge
21. The Hon. Mr. Justice A.G.G. Korosso Puisne Judge
22. The Hon. Mr. Justice A. Bahati Puisne Judge
23. The Hon. Mr. Justice H.A. Msumi Puisne Judge
24. The Hon. Mr. Justice J.L. Mwalusanya Puisne Judge

Judges of the High Court of Zanzibar in 1985

1. The Hon. Mr. Justice A.S.L. Ramadhani Chief Justice

Cases Reported
1985 TLR p1
A
[zRPz]SHEIKH MOHAMMAD NASSOR ABDULLA v THE REGIONAL POLICE COMMANDER, DAR ES SALAAM REGION AND TWO OTHERS 1985 TLR 1 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mapigano J

12 November, 1983
MISCELLANEOUS CRIMINAL CAUSE 21 OF 1983 B
Flynote
Administrative Law - Deportation - Whether the President has power to deport a person from Tanzania Mainland to Zanzibar. C

Statutory Interpretation - Territory - Power of the President to deport a person from any part of the Territory to any other part of the Territory - Meaning of Territory - Section 3, Interpretation and General Clauses Act, 1972.

-Headnote

This was an application for directions in the nature of habeas corpus. The applicant was deported to Zanzibar D from Tanzania Mainland under an order by the President. The order which was made under the Deportation Ordinance Cap. 38, was challenged in the High Court on the ground that the President exceeded his powers under the Ordinance. E

Held: (i) Section 2 of the Deportation Ordinance empowers the President to deport a person from one part of the Territory to any other part of the Territory;

(ii) under section 3 of the Interpretation of Laws and General Clauses Act, 1972 the word Territory F means Tanganyika;

(iii) the President has no power under the Deportation Ordinance to order deportation of a person from Tanzania Mainland to Zanzibar; therefore, the deportation order was illegal.

Case Information

Order accordingly. G

Case referred to:

1. Zabrovsky v Palestine (General Officer Commanding) (1947) A.C. 246 H

J.J.A. Mwale for the applicant.

A. Shio for the respondents.

Judgment

Mapigano, J.: This is a chamber application for the issue of directions in the nature of I habeas corpus as provided for under section 348(1) (a) of the Criminal Procedure Code, Cap. 20 of

the Revised Laws of Tanganyika. The application has been made under the provisions of the Habeas corpus A Rules and is supported by an affidavit sworn by one Zainabu Muhammad Nassor Abdulla. She has deposed that the applicant Sheikh Muhammad Nassor Abdulla, her husband, was arrested at their home, taken away and B detained by the police. She averred that the arrest and the detention was without justification and illegal. She also stated that it will be proper that the applicant be discharged on habeas corpus.

The remedy sought for, as shown above, is the issue of directions in the nature of habeas corpus. This remedy C has its roots in England. At common law the prerogative writ of habeas corpus is directed to a person who detains another in custody and commands him to produce or have the body of that person before the court for a specified purpose. The most important specie of habeas corpus is that which is called habeas corpus ad D subjiciendum. This commands the person to whom it is directed to produce the body of a person detained, with the day and cause of his caption and detention, to do, submit to and receive whatsoever the court shall direct. We are told that this writ was formerly much used for testing the legality of imprisonment for political reasons, E especially during the reigns of the Stuarts. Besides the efficacy of the writ in liberating the subject from illegal confinement in a public prison, it also extends its influence to remove every unlawful restraint of personal freedom in private life, availing, for example, to

release a person from a place where he has been unlawfully banished. It is F part of the law of this country. But, it may be stressed, to invoke the remedy of habeas corpus it must be shown that the detention is improper or illegal: See Zabrovsky v Palestine General Officer Commanding (1947) AC 246. That, of course, is trite law. So much for the writ of habeas corpus.

The salient facts of this application are not in dispute and need to be stated in the barest outline only. The G applicant is a citizen of Tanzania. He was born at Makunduchi in Zanzibar in 1929. He is practising polygamy. He is married to four wives, Zainabu, the deponent herein, being one of them. As a Moslem he is allowed to take that number of wives. No surprise, therefore, that he has begotten twenty-eight issues. He has been in the H public service for the long period of thirty three years and has held various posts here and abroad. He retired in February, 1980 and settled down in Dar es Salaam at Mabibo, where he felt for and took up the vocation of a religious leader. At about 10 a.m. on the 9th October, 1983, he was arrested at his house at Mabibo and I whisked away in a landrover to police custody. The three respondents were on the detail that arrested him. We do not know where exactly he was confined, but we were informed by counsel for the respondents Mr. Shio,

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that he has since been deported to Zanzibar. However, in no way did the learned counsel reveal when he was A deported and whether he is still being held in confinement.

On behalf of the respondents it has been said that they were doing the bidding of their superior. It has been contended that the actions of the respondents and the deportation of the applicant from Dar es Salaam to B Zanzibar has legal validity. An Order made under the hand of His Excellency the President and the Public Seal has been produced for the perusal of this Court and the opposite party. The Order in question purports to have been made under sections 2 and 5 of the Deportation Ordinance, Cap. 38 of the Revised Laws of Tanganyika, C which came into operation on the 1st May, 1921. The Order is dated the 7th October, 1983.

Paraphrased, the Order reads that in the exercise of the powers vested in him by section 2 of the Deportation D Ordinance, the President ordered the deportation of the applicant from Dar es Salaam Region to Zanzibar, upon being satisfied that the applicant was conducting himself so as to constitute his continued residence in the Dar es Dar es Salaam Region and the neighbouring regions dangerous to peace and good order. And that the Order constituted a warrant under section 5 of the Ordinance for the detention of the subject, until a suitable opportunity E occurred for his deportation.

It was the argument of counsel for the respondents that the Order of deportation is a lawful one and cannot be questioned or impeached. He has referred this Court to the provision of section 3 of the Deportation Ordinance, F which says that an appeal cannot lie from any order of deportation under the Ordinance. Councel has also argued, if only uneasily, that the President enjoys executive powers under the Constitution of the United Republic to deport a person from any part of the United Republic to any other part of the United Republic. His authorities for that are section 11 (1) and 94 (1) of the Constitution. Section 11 (1) provides that: G

The executive authority of the Government of the United Republic with respect to the United Republic and to all Union matters shall vest in the President. H

"Union matters" is defined under section 94 (1) of the same Constitution as the matters that are specified in Part II of the Schedule to the Constitution. Counsel has pointed out that among the matters so specified is (in Kiswahili): "Mamlaka juu ya mambo yanayohusika na Hali ya I

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Hatari". It was his opinion that the matter at hand falls squarely within the purview of these provisions of the A Constitution.

It was on those grounds that the respondents, through their counsel, contested this application and urged that it be refused.

In his reply, counsel for the applicant, Mr. Mwale, first made a remark about a deportation being a serious B matter. He said that it is a painful thing to the deportee, physically and mentally. No sane man can disagree with that observation. Under the Deportation Ordinance the President has been given powers to deport a person C from one part of the Territory to any other part. The exercise of these powers, surely, affects the subject and others. It serves to abridge his fundamental right. It is notable that one of the most singular features of the Ordinance is the indefiniteness of the operation of the Order of deportation. No term is fixed for the operation of such Order and no review machinery or procedures have been set down. The agony is, perhaps, in the D uncertainty, the nightmare of unending speculation, and that applies to the subject and to the family and other associates. I share the view that the question as to whether a person is conducting himself so as to be dangerous to peace and good order in any part of the Territory is entirely subjective. And subject to what I am going to say E below, the decision to deport a person from one part of the Territory to any other part of the Territory in pursuance thereof cannot be impugned in any court. However, as demonstrated, deportation is a very weighty matter and Orders of deportation should, therefore, be prudently and sparingly made.

Mr. Mwale argued that the President has no power under the Deportation Ordinance to deport a person from F any part of Tanganyika to Zanzibar. He has referred this Court to the very provision of section 2 of the Ordinance and section 3 of the Interpretation of Laws and General Clauses Act, 1972. Section 2 of the G Ordinance provides that if the President is satisfied that the circumstances stipulated therein do exist he may order the deportation of the person concerned "from any part of the Territory to any other part of the Territory". By section 3 above, the word "Territory" is assigned the meaning "Tanganyika" "the territory formerly comprising the Republic of Tanganyika". On that basis learned counsel charged, and this is where the thrust of the application H lies, the President manifestly exceeded his powers under the Ordinance in purporting to deport the applicant from Dar es Salaam Region to Zanzibar which is not part of Tanganyika, thereby extending, in effect, the operation of the Ordinance to Zanzibar. In his opinion, the Order of deportation was illegal and void ab initio.

With regard to the powers of the President under the Constitution of the United Republic, Mr. Mwale submitted that there is no provision I

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that empowers the President to deport a person from Tanganyika to Zanzibar or to extend, as it were, the A operation of the Tanganyika Deportation Ordinance to Zanzibar. He argued that there was no occasion to operate sections 11 (1) and 94 (1) of the Constitution simply because he said, the matter at hand did not fall B within the scope of "mambo yanayohusika na Hali ya Hatari" which is one of the matters specified in Part II of the Schedule. "Mambo yanayohusika na Hali ya Hatari", he argued means emergency matters.
Mr. Mwale concluded his speech by submitting that since the Order of deportation is at law illegal, then what was occasioned by the Order i.e. the arrest, detention and deportation of the applicant to Zanzibar, were also C illegal and that, therefore, the order should be declared null and void and the applicant set at liberty.
I will now proceed to consider the merit or demerits of the application and pronounce on the issues that have been raised. The point has been boldly made that the Order of deportation is not challengeable in Court. As we D have seen, counsel for the respondents is relying on section 3 of the Deportation Ordinance which, as already shown, reads that an appeal shall not lie from any order of deportation under the Ordinance.
This point is easily disposable. I think Mr. Shio has gone wrong in construing section 3 of the Ordinance that E way and the authorities militate against his proposition. This is not an appeal. It is an application under section 348 (1) (a) of the Criminal Procedure Code for habeas corpus. No doubt that the writ of habeas corpus can be used to challenge even the act of the Executive if that act unjustifiably infringes upon the liberty of the subject. F In being seized of the matter a court is not sitting in appeal as such. It is merely concerned to find out for certain whether or not the act of the Executive is in line with the law of the land. Where a person has been detained by the Executive the test, as stated above, is whether the detention is illegal or not. And over the years G many decisions have been pronounced that it is illegal if the order in respect thereof is ex facie bad, or where the Executive has acted in excess of its powers or failed to comply with the requirements thereof, or where the Executive has acted in bad faith or has committed a breach of natural justice. In short, therefore, the competence of this application cannot be impeached on the ground that this court lacks jurisdiction. H
The next point does not, likewise, present any difficulty and must be decided by reference to the language of the statute, which tends itself to easy interpretation. On behalf of the applicant it has been contended, in fine, that the order of deportation is on the face of it bad and that it is ultra vires the powers conferred on the President by the Deportation I
1985 TLR p6
MAPIGANO J
Ordinance. There, as remarked, is where the main punch of this application rests. A
Section 2 of the Ordinance whereunder the applicant was deported provides, in language clear and plain, that the President can deport a person from one part of the Territory to any other part of the Territory. I set down part of that section hereunder: B

> Where it is shown by evidence on oath, to the satisfaction of the President that any person is conducting himself so as to C be dangerous to peace and good order in any part of the

Territory, or... the President may, if he thinks fit by order under his hand and official seal, order that person to be deported from any part of the Territory to any other part of the Territory.
We must refer to the meaning given the word "Territory" by section 3 of the Interpretation of Laws and General D Clauses Act, 1972. Under that provision "Territory" means Tanganyika. Section 2 of the Ordinance does not say, and I should find some difficulty in understanding it if it did, that the President is empowered to deport a E person from any part of Tanganyika to Zanzibar. It may be noted that there has been for over forty years a comparable law on the statute books of Zanzibar providing for deportations and restrictions. It is the Deportation Decree, Cap. 41 of the Laws of Zanzibar, which came into force on 11th June, 1940. Under F section 4 of the Decree, the Executive there may, if it thinks fit, make a restriction order in respect of any person who is either (a) a convicted person, or (b) an undesirable person. An undesirable person is, by section 2, a person who is or has been conducting himself so as to be dangerous to peace, good order, good government, or public morals. By the same section, a restriction order means an order prohibiting the person in respect of whom G it is made from entering or from leaving an area within Zanzibar without the consent of the officer specified in the order. That said, I am compelled to pronounce, with the greatest respect and humility, that the order of deportation in respect of the applicant in the instant matter is, for the reasons I have given, gravely flawed.
Finally, as regards the point about the President having been granted powers by the Constitution of the United H Republic to make orders of deportation such as the one here, I am at one with Mr. Mwale that it is hardly possible to derive out of the terms of sections 11(1) and 94 (1) of the Constitution and Part II of the Schedule I thereto any such powers. "Mamlaka juu ya mambo yanayohusika na Hali ya Hatari" in the Schedule are, in my opinion, quite different affairs. Under the previous Constitution, the Interim Constitution of Tanzania, 1965, Cap. 596 of the J
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Revised Laws of Tanganyika, they were called emergency powers and I see nothing in the 1977 Constitution that A can reasonably lead me to say that they are now known otherwise. In any event, it is quite obvious that the President did not purport to invoke his powers under those sections. He expressly stated that he was exercising his powers given to him by section 2 of the Deportation Ordinance. In sum, there is no force in the argument put forth by Mr. Shio relating to the Constitution. B
In the result I am satisfied that there are merits in this application and compelling grounds for granting it. I hold that the order of deportation against the applicant be set aside and the applicant be released unless he is otherwise lawfully held or restricted. C
Order accordingly.
1985 TLR p7
D
[zRPz]PULCHERIA PUNDUGU v SAMWEL HUMA PUNDUGU 1985 TLR 7 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mnzavas JK

4 October 1984
MATRIMONIAL CIVIL CAUSE 18 OF 1982
Flynote
Family Law - Matrimonial property - Division of - Underlying principle.
Family Law - Matrimonial property - Division of - Parties of different customs - Whether S. 114 (2) (a) of the Law of Marriage Act, 1971 may be invoked.
-Headnote
The parties to this cause are a Msukuma and a Mchagga. Having granted divorce which was petitioned by the wife, a Mchagga, the Court was confronted with the problem of dividing the matrimonial assets between her and the respondent, a Msukuma. While the petitioner relied on the Court of Appeal decision in Bi Hawa Mohamed v Ally Sefu the respondent raised two arguments. First, that although the marriage subsisted for about twenty years the petitioner contributed nothing towards the acquisition of any of the property. Secondly, that according to the Sukuma customary law, in case of a divorce, a wife is not entitled to a share of property, even though jointly acquired during the subsistence of a marriage.
Held: (i) The principle underlying division of matrimonial property is one
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of compensation, it does not make any difference whether what is being compensated is direct monetary contribution or domestic services;

(ii) when the court considers the question of division of matrimonial assets under section 114(1) of the Law of Marriage Act and where the parties are of different customs a non-traditional mode of life may be assumed in which case section 114(2)(a) may not be invoked.
Case Information
Order accordingly.
Cases referred to:

1. Bi Hawa Mohamed v Ally Seffu, Civil Appeal 9 of 1983
2. Ramadhani s/o Bakari v Kichunda Mwenda and another [1973] L.R.T 33.
3. Mbaruku v Chimonyogoro [1971] H.C.D. 406
4. Re Innocent Mbillinyi: Administration of Estates [1969] H.C.D. 283

R.C. Kesaria for the petitioner
N.E. Mkono for the respondent
Judgment
Mnzavas, J.K.: The petitioner, Pulcheria Pundugu, and the respondent, Samweli Huma Pundugu, were married in church on 19/2/64. The union is blessed with five issues. Now the petitioner is petitioning for divorce alleging adultery and cruelty on the part of her husband, the respondent. In her petition as well as in her evidence she said that the respondent always neglected and abused her. According to her testimony their quarrels came to a climax in October, 1979 when the respondent forced her out of the matrimonial home.

The Court was also told that in January 1981 while they were living in separation the respondent brought another G lady into the matrimonial home and that the respondent has since been living in adultery with this other lady.

It was also her testimony that the respondent has not maintained her and the children (who are living with her) from 1979. According to her evidence during their married life they acquired a farm at Magogoni where they H erected a house, bought a house near Drive Inn Cinema and built a house in Bariadi.

The petitioner prayed that the marriage be dissolved, that she be given custody of all the children, that the respondent be ordered to maintain her and the children and that she be given part of the property she alleges was jointly acquired during the subsistence of the marriage. I

In his defence the respondent argued that the petitioner left the

matrimonial home on her own accord and that he did not drive her out of the house. He also told the Court that A he started living with another woman a year after the petitioner had left him.

It was his defence that for eight years they lived happily but that after this period matrimonial friction started. He told the court that the petitioner became unco-coperative, extravagant and that he could no longer trust her with B money as she had started business without his knowledge.

As for the property alleged by the petitioner to have been jointly acquired during the subsistence of the marriage it was respondent's defence that he acquired all the property single handed and that the petitioner did not C contribute to their acquisition. As to petitioner's argument that he has not provided maintenance for her and the children, the respondent said "all along I wanted to maintain the children but she refused. She gave me the impression that she had the means to support them. Before we came to court I had asked her what amount of D money she needed from me as her maintenance and the children and she said that she did not want any money".

Then the respondent finally said that he did not see any reason why he should maintain the petitioner bearing in mind that her income is bigger than his. E

From the evidence of the petitioner and respondent's defence there is no dispute that the respondent had willing sexual intercourse with one Penina Mkoma while the marriage between him and the petitioner was subsisting. This was adultery by the respondent and therefore a matrimonial offence under section 107(2)(a) of the Law of F Marriage Act No.5 of 1971. As a result of respondent's adultery with the said Penina two children have been born.

The parties have lived in separation for over five years now and if the evidence of the petitioner is anything to go by, and bearing in mind respondent's adultery, the respondent is to blame for the separation. G

Taking into regard all the evidence tendered before me and the conduct and circumstances of the parties it is clear that there is no more love between the parties. The marriage between the parties has not only broken down but has broken down irretrievably.

That being the position it will serve no useful purpose for the union to continue. It is therefore ordered that the H marriage between the parties be dissolved; and it is hereby dissolved.
As for the question of custody of the children, they have been living with their mother from 1979. When cross-examined by the learned counsel for the petitioner on the question of custody the respondent replied - "I did not seriously object to their going to live with their mother" In para 9(b) of his reply the respondent has no I objection that the
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MNZAVAS JK
petitioner be given custody of the children under the age of eighteen but on condition that he be allowed to have A reasonable access to them.
In deciding in whose custody an infant should be placed the Court is required (under section 125(2) of the Law of Marriage Act) to take into account the paramount consideration regarding the welfare of the infants. The B Court is also required to have regard to the wishes of the parents of the infants.
In the present case, and as I have already mentioned above, the respondent does not insist that he should be given custody of the children. Indeed, he has no objection to the petitioner's claim that the children be in her custody. C
I accordingly order that the two infants Jane Pundugu and Agnes Pundugu who are below eighteen years of age be in the custody of their mother, the petitioner. As the other three children are over eighteen years the question of custody does not in law apply to them. D
I now come to the difficult question regarding distribution of property. As I have already mentioned above the applicant argued that she contributed in the acquisition of the property namely - A house in Magogoni and a farm, E a house at Drive Inn Cinema Dar es Salaam, and a house in Bariadi, Shinyanga region. The respondent on the other hand countered that he acquired the said property with his own resources and that the petitioner contributed nothing in the acquisition of the property. In support of the argument that the petitioner is entitled to a share of the property the learned counsel for the petitioner argued that even if the petitioner did not contribute in F way of money in acquiring the said property, she was, it was submitted, entitled to a share of the property by the mere fact that she was wife of the respondent and contributed in the maintenance of the matrimonial home. In support of this argument the Court was referred to the decision by the Court of Appeal in Civil appeal No.9 of 1983 - Bi Hawa Mohamed v Ally Seffu. G
As regards the argument that in this case the Court should decide the question of distribution of the assets taking into account Sukuma customary law, Mr. Kesaria submitted that in a conflicts case the Court is required to decide the case on the basis of policy and justice. In support of this argument the decision in Ramadhani s/o H Bakari v Kichunda Mwenda and Another [1973] L.R.T.33 was quoted. The Court was also referred to the decision of this Court in Mbaruku v Chimonyogoro [1971] H.C.D. 406.
In rebuttal Mr. Mkono argued that the case in Bi Hawa Mohamed v Ally Seffu has no relevance on the facts of I this case. It was submitted that in Bi. Hawa's case the wife was a mere house wife and therefore did house work which could have contributed towards the acquisition of the

assets. In the present case it was argued that the petitioner has since her marriage been working and that she A kept her income to herself. It was argued that the petitioner did not contribute towards acquisition of the property. It was also argued that under Sukuma customary law matrimonial property remains with the husband B and that in deciding the question of distribution of the assets the Court should have regard to the customs of the community to which the parties belong. In support of this argument section 11(2)(a)of the law of Marriage Act was referred to the Court.

It is now settled law after the decision by the Court of Appeal in Bi. Hawa's case and the commentary by C Professor Rwezaura in his paper - Division of Matrimonial Assets under the Tanzania Marriage Law, that the principle underlying division of property is one of compensation, it does not make any difference whether what is being compensated is direct monetary contribution or domestic services. D

As argued by Professor Rwezaura at page 6 of his paper, and, in my view, rightly so, "the legal principle on which division of matrimonial assets is based is one of giving recognition to the contribution of the spouse towards the acquisition or enhancement of value of the particular property".

It is not all in dispute that the property (three houses) at Bariadi, Magogoni and at Drive Inn Cinema area were E acquired during the subsistence of the marriage.

Respondent's argument was that despite the fact that they were married about twenty years ago and that the property was acquired during the life of their union the petitioner did not contribute anything towards acquisition F of any of the property. It was also respondent's argument that as he is a Msukuma, a wife is not, under Sukuma customary law, entitled to a share of property (jointly acquired during the subsistence of a marriage) in case of a divorce.

It may have been Sukuma custom that a divorced wife is not entitled to a share of matrimonial assets jointly G acquired during the subsistence of the marriage; but with due respect to the learned counsel for the respondent such customary law is no longer valid after the enactment of the Law of Marriage Act - No.5 of 1971. Of course section 114(2)(a) says that in dividing assets under section 114(1) the Court shall have regard "to the H custom of the community to which the parties belong". But that does not mean that the petitioner is not entitled to a share in the assets. Indeed even if, for the sake of argument, the customary law argument was to be accepted, it is a fact that the parties are of different customs. The petitioner is a Chagga whereas the respondent is a Sukuma. In such cases, as was the case in Re - Innocent Mbilinyi's Administration of Estates - [1969] H.C.D. 283, the petitioner can reasonably be said I

to have abandoned his Sukuma mode of life in favour of a non-traditional way of life. A

The argument that the petitioner did not contribute anything towards acquisition of the said property is, I agree with the learned counsel for the petitioner, hard to believe; bearing in mind

that the parties have lived together as B husband and wife for about twenty years - Both of them apparently all the time engaged in salaried jobs.

On the facts of this case I am inclined to believe the petitioner when she says that she contributed in the acquisition of the assets over and above her contribution in the day to day caring of the children and domestic duties. C

According to the evidence of the respondent when cross-examined by learned counsel for the petitioner the house at Drive Inn Cinema area is worth about Shs. 300,000/=; that at Kigamboni is estimated at Shs. D 200,000/= and the one at Bariadi was built at a cost of Shs. 40,000/= ten years ago. There is a developed shamba of about eleven acres at Magogoni. There are sixteen head of cattle, thirty goats and three sheep.

As to how much each of the parties contributed in acquiring these assets is difficult to say with any amount of certainty. It is however not in dispute that the respondent's monthly salary has always been much far bigger than petitioner's. E

Taking into account this fact there can be no doubt that petitioner's contribution in the acquisition of the property is less than that of the respondent. Doing the best I can and taking into account the fact that the petitioner will F have the burden to house the two infants -Jane and Agnes and the further fact that the other children have always been living with her, ends of justice demand that she gets one of the three houses as her share of the assets jointly acquired during the subsistence of the union.

Bearing in mind that one of the houses is at Bariadi, Shinyanga region, and the second house is at the Magogoni G farm where the respondent is residing and is running business, it will be convenient to both parties for the house situated near Drive Inn Cinema be awarded to the petitioner. It is so ordered. Coming to the question of maintenance it is not disputed that the respondent has not been maintaining the petitioner and the children since 1979. All this time the petitioner has been providing for the children and employing an ayah to take care of the H mentally retarded child.

The respondent argued that he offered to provide maintenance but that the petitioner declined to accept the offer. I am far from being persuaded by respondent's argument. I know of no wife with five children who would refuse I maintenance from a husband. Bearing in mind that the petitioner had to pay an ayah to take care of the retarded child as well as

maintaining herself and the other children but of course not forgetting that the petitioner had an independent A income from her salary; it is my view that a monthly maintenance of Shs.1000/= would have been reasonable for the period they lived in separation. She is therefore entitled to arrears of maintenance of Shs.1000/= monthly for the period of five years of separation. This comes to Shs.60,000/= arrears of maintenance. B

As for the coming years and bearing in mind that the respondent has since retired from Government Service and the further fact that the petitioner is in receipt of Shs.2700/= monthly gross salary, the burden of maintenance of C the two infant children will have to be the

responsibility of both parties. The respondent is to pay Shs.800/= monthly towards maintenance of the two children. I make no order as to costs.
Order accordingly.
1985 TLR p13
D
[zRPz]SAIDI MOHAMED v ZENA ALLY 1985 TLR 13 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Lubuva J

(PC) MATRIMONIAL CIVIL APPEAL 6 OF 1983 E
Flynote
Family Law - Divorce - Cruelty as a ground for divorce - Meaning of cruelty. F
-Headnote
The respondent petitioned for divorce on the ground of cruelty in a primary court where she was unsuccessful. On appeal to the district court she won whereupon the appellant decided to challenge the district court's ruling in the high court. It was established by evidence that the appellant was in the habit of beating the respondent. It G was in evidence that the appellant threatened to kill the respondent. Moreover he, once stripped her naked before other people including her father-in-law.
Held: (i) Cruelty means wilful and unjustifiable conduct of such a character as to cause danger to life, limb or H health, bodily or mental, so as to give rise to a reasonable apprehension of such danger;
(ii) the appellant's conduct of not only beating but also undressing his wife infront of other people generally, and her father-in-law in particular was an embarrassing and distressing act of cruelty which inflicted I considerable physical and mental torture to the respondent.
1985 TLR p14
Case Information
Appeal dismissed. A
Case referred to:
1. Russell v Russell [1897] A.C. 395 B
Jugdgment
23 September, 1985. Lubuva, J.: Before Mkamba Primary Court in Kisarawe District, the Respondent filed proceedings seeking divorce against the Appellant, her husband. She was unsuccessful before the Primary Court from whose decision, she appealed to the District Court Kisarawe. Her appeal was allowed wherein the C marriage was ordered dissolved. From that decision the appellant has appealed.
In her testimony before the Primary Court, the Respondent gave what appears to be quite a detailed version of events of cruelty against the appellant which ultimately gave rise to the petition for divorce. She had alleged that D the appellant was in the habit of beating and

stripping her naked before other people. She cited one incident in which she was beaten and had to seek refuge at the house of the ten cell leader one Athumani Kindumbo. The appellant admitted to have done so and pleaded to be forgiven by the Respondent before the ten-cell leader pledging not to repeat such incident. This incident is not denied by the appellant who as a matter of fact gave E Shs.10/= to the Respondent by way of appeasing her. The ten-cell leader Athumani Kindumbo (PW.1) also gave supporting evidence on the matter. The Respondent also alleged that on another incident, the Appellant F again beat her up and the matter was taken to the Police dispensary and the ten-cell leader who, according to her was insisting that she should continue staying with the appellant and was not keen to have the matter taken to court. On this occasion, the Respondent alleges that the Appellant agreed to pay the Respondent Shs.50/= so as to have the matter settled amicably at home. In regard to this, there does not seem to be any dispute raised as G the Appellant himself admits in his defence when cross examined by the court when he states:

.... Nimeona nimekosa ndiyo maana nimelipa faini ya Shs. 50/= kwake.

This means therefore that apart from the incident in which the Appellant agreed to pay Shs.10/= to the H Respondent, there was another incident as the respondent claims in which she was beaten resulting in the payment of Shs.50/=. This is because, the Appellant admits of only one incident of beating his wife, the I Respondent when he offered to pay Shs.10/=, to the Respondent in appeasement. On record, it is also shown that as the hearing of the suit was going on, the Respondent reported to the

Court that the Appellant was threatening to kill her. The Respondent was thus ordered to stay at her father's A house until the day of judgment. On such evidence the Primary Court Magistrate who sat with two assessors in agreement with the assessors was of the opinion that no sufficient evidence had been adduced in support of the B Respondent's case. That cruelty had not been proved to the extent of warranting the dissolution of the marriage. The Respondent appealed to the District Court Kisarawe District.

The learned district Magistrate in a well reasoned judgment analysed the entire evidence as adduced before the C Primary Court. He came to the conclusion that the evidence as adduced sufficiently proved cruelty on the part of the Appellant the husband in terms of the provisions of Section 107(2)(c) of the Law of Marriage Act, 1971. Having believed as the Primary Court did in the truthfulness of the evidence of the Respondent the learned D District Magistrate found as an established fact that the Appellant had been in the habit of beating his wife, the Respondent and had stripped her naked before the Appellant's father. This, in the view of the learned District Magistrate was sufficient cause of mental and physical torture on the part of the respondent. As pointed out, the learned District Magistrate held that the marriage had in the circumstances broken down irreparably. The E Appellant's main ground of appeal is that the beating of his wife the Respondent was an isolated incident which took place way back in the past was not sufficient to prove cruelty. He maintains that he still loves his wife in which case it

was erroneous on the part of the learned District Magistrate in upsetting the decision of the Primary Court.

At the hearing of the appeal, the Respondent stressed that she is no longer interested to live with the Appellant as F man and wife due to the persistent cruel behaviour of the Appellant towards her. She contended that though the Appellant had promised before the ten-cell leader not to repeat beating or undressing her infront of other people, he does not adhere to his word. The Appellant did not want to say anything before this court apart from G his statement that anything that the court decides would be alright for him, he repeated his pleading that he was still in love with his wife, the Respondent. On the main, there is no dispute that the gravamen of the case is centred on the question of cruelty on the part of the appellant. Cruelty is defined by Tolstoy in his book, The H Law and Practice of Divorce and Matrimonial Causes, 5th Edition at page 60 as:

.... Wilful and unjustifiable conduct of such a character as to cause danger to life, limb, or health, bodily or mental, or as to I give rise to a reasonable apprehension of such a danger.

1985 TLR p16

Such was also the holding of the House of Lords in the case of Russell v Russell (1897) A.C. 395. I would A with respect adopt and apply this principle of law to the instant case. With this guiding principle, there can be no doubt that the learned District Magistrate was justified in his decision. There was sufficient evidence from the B petitioner the respondent which was believed as truthful as well as the supporting evidence of Athumani Kindumbo (PW.1) which amply proved the petitioner's claim that the marriage had irreparably broken down. Apart from this, it is also clearly shown on record that as the proceedings were going on before the Primary C Court, because of the Appellant's threats to kill the Respondent, the court ordered the Respondent to stay with her father and at the same time, Appellant was warned not to repeat such behaviour. This is yet another piece of evidence which fully supports petitioner/Respondent's claim against the cruel behaviour of the Appellant. The D Appellant's conduct of not only beating but also of undressing her infront of other people in general and particularly her father-in-law was no doubt a most embarrassing and distressing act of cruelty which inflicted considerable physical and mental torture on the Respondent.

From such evidence as a whole, and what I have heard from the parties themselves at the hearing of the appeal, E the Respondent who is strongly objecting to live together with the Appellant and cannot be compelled to do so by court proceedings, I am satisfied that the learned District Magistrate' decision was justified. In the event, the appeal is dismissed with costs.

F Appeal dismissed.

G

[zRPz]ANGELA MPANDUJI v ANCILLA KILINDA 1985 TLR 16 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Bahati J

11 May, 1985
CIVIL CAUSE 193 OF 1984 H
Flynote
Tort - Damages - Exemplary damages - When awardable.
-Headnote
The defendant, a student at the Institute of Finance Management, published of the plaintiff also a fellow student in I the same Institute that he sold her examination questions for Shs.1,000/=. As a result the plaintiff was dismissed from the Institute and thus rendered incapable of obtaining
1985 TLr p17
BAHATI J
qualifications as an accountant. In addition she was dismissed from her job and suffered disgrace and mental A torture. She filed a suit for slander and prayed for exemplary damages in the sum of Shs.500,000/=.
Held: (i) Exemplary or punitive or vindictive damages are damages given not merely as pecuniary compensation B for the loss actually sustained by the plaintiff, but also as a kind of punishment of the defendant with the view of discouraging similar wrongs in future;
(ii) since the plaintiff has lost her job, has suffered disgrace and mental torture besides suffering financially C and being rendered incapable of obtaining qualifications as an accountant and also being forced to work as a mere accounts clerk, she is entitled to substantial and exemplary damages.
Case Information
Judgment for the plaintiff. D
Case referred to:
1. Davies v Mohanlal Karamshi Shah [1957] E.A. 352
F.H. Uzanda, for the plaintiff. E
Judgment
Bahati, J.: This is a suit for damages for slander. The plaintiff in her plaint avers that the defendant falsely and maliciously spoke and published of the plaintiff to members of the Tanzania Police Force, F and members of the Executive Committee of the Institute of Finance Management Council as well as members of a Probe Committee appointed by the said Executive Committee the following words:
.... Accountancy and Costing Examination Questions were sold to me by Angela for Shs.1000/=. The sale took place at a Bus Stop near Urafiki Ubungo in the morning. G
By reason of the said words the plaintiff has been injured gravely in her character, credit and reputation and has been brought into public scandal, odium and contempt and has suffered damage. H
In consequence of the said words the Institute of Finance Management terminated the plaintiff's studies at the said Institute and barred her from attempting any Institute of Finance Management examinations in future and further nullified the results the plaintiff had achieved

in April, 1984 examination. Also the National Development I Corporation the plaintiff's employer withdrew its training award to the plaintiff and terminated the services of the plaintiff. The plaintiff therefore claims general damages

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BAHATI J

from the defendant in excess of Shs.200,000/= on the basis of aggravated damages as the plaintiff demanded an A apology and reasonable compensation from the defendant but the demand was ignored.

This case proceeded ex-parte because the defendant failed to file her written statement of defence as ordered by B the court. In her evidence in court the plaintiff averred that she was a student at the Institute of Finance Management hereinafter referred to as IFM. She was dismissed from IFM after she was called and told by the IFM authorities that she had sold examination papers. She was taken to the Police Station in connection with this C allegation of selling examination papers. She was also taken to a panel of investigators appointed by IFM Management. She denied throughout to have sold any examination papers to anybody. She also appeared before a probe Committee and again she denied selling any papers to anybody. All the same she was dismissed D by letter dated 2nd May, 1984. When she got the Police report, the report had the name of the person who had alleged to have bought the papers from the plaintiff. The name was that of the defendant namely Ancilla Kilinda. The Police report, moreover, exonerated the plaintiff. All the same she was dismissed even from the E National Development Corporation (N.D.C.), her employer. After that the plaintiff stayed for 4 months without a job before she eventually got employed with the Co-operative Union of Tanganyika as an accounts clerk whereas she would have been employed as an accountant if she had completed her course at the IFM. The plaintiff felt very depressed and disturbed mentally because of all these occurrences and she resorted to the law F courts through a lawyer in order to get whatever rights she had. As a result of this episode she was shunned by all her friends, she lost her job and missed her certificate and encountered a variety of other problems. She was therefore praying for damages to the tune of at least 500,000/=.

In his submission at the end of this case Mr. Uzanda, learned counsel for the plaintiff said that the defendant had G slandered the plaintiff and that this slander was actionable per se without proof special damages because the words complained of impute a crime for which the plaintiff could be prosecuted and that the words had damaged H the plaintiff in her profession. He submitted further that the plaintiff was entitled to exemplary damages for this slander. The plaintiff, Mr. Uzanda submitted, could recover substantial damages because she has suffered considerable injury to her reputation and because the slander led to her dismissal from IFM and N.D.C. and that the allegations received very wide publicity in the press and on the radio. Further more, Mr. Uzanda said that this slander has been aggravated by the conduct of the defendant who has shown no I

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BAHATI J

contrition nor has the defendant apologized. The plaintiff had asked for an apology and nominal damages from A the defendant but the defendant has done nothing of the sort. Nor did the defendant bother even to file a written statement of defence.

There is no doubt that this slander is actionable per se because it imputes the commission of a crime and also B because it has damaged the profession of the plaintiff. There is no doubt from the evidence given that the defamatory words were uttered by the defendant and that the slander has caused the plaintiff to suffer damage in her profession as well as in her reputation. For the defendant to allege that the plaintiff sold her examination C papers is certainly to defame her exposing her to prosecution by the Police. Similarly for the plaintiff to lose her certificate in advanced diploma in Accounting and also to suffer dismissal from the course and her employment is to suffer damage. Mr. Uzanda for the plaintiff contends that exemplary damages should be awarded. Jowitt's Dictionary of English Law Second Edition defines exemplary damages as follows: D

> .... exemplary, or punitive or vindictive damages are damages given not merely as pecuniary compensation for the loss E actually sustained by the plaintiff, but also as a kind of punishment of the defendant, with the view of discouraging similar wrongs in future, as in actions for defamation, malicious injuries, oppression, continuing nuisances, etc.

I shall now consider first whether there is any defence available for the defendant in this case. I can see none. F There is no defence to this suit unless the defendant can prove that her allegations are true. This she has not done. The evidence has shown clearly that it was the defendant who slandered the plaintiff and that the Police investigated the matter and found the allegations false. There cannot be any defence of either qualified privilege G or absolute privilege here.

Now, as for exemplary damages, I am of the opinion that they should be awarded here. I am fortified in this view by the court of Appeal Case of Davies v Mohanlal Karamshi Shah [1957] E.A. 352. Where it was held H inter alia that "punitive or exemplary damages are, as their names imply, damages by way of punishment or deterrent. They are given entirely without reference to any proved actual loss suffered by the plaintiff". In that Court of Appeal case, the plaintiff was a Deputy Registrar of the Supreme Court at Mombasa who had had libels I published of him by the defendant which contained serious allegations of dishonestly, wilful misconduct in the course of his official duties, and professional misconduct.

1985 TLR p20

The libels were published to the Chief Justice of Kenya, the Attorney General, a Judge at Mombasa etc. The A Court of Appeal for East Africa awarded him Shs.10,000/= as damages. In this case the plaintiff is asking for at least Shs.500,000/= as damages since she has lost her job and has suffered disgrace and mental torture besides B suffering financially and being rendered incapable of obtaining qualifications as an accountant and also being forced to work as a mere accounts clerk. Considering all these factors in their totality, I agree that the plaintiff is certainly entitled to substantial and exemplary damages. I would award her Shs.150,000/= as damages. C

I therefore enter judgment for the plaintiff in the sum of Shs.150,000/= with costs as prayed in the plaint.
Judgment for the plaintiff.
1985 TLR p20
D
[zRPz]REPUBLIC v ALBERT AWOUR AND 3 OTHERS 1985 TLR 20 (HC)

Court High Court of Tanzania - Mwanza
Judge Lugakingira J

June 16, 1978
MISCELLANEOUS CRIMINAL CAUSE 9 OF 1978 E
Flynote
Criminal Practice and Procedure - Change of trial venue and magistrate - Application for change of venue under s.80 of the Criminal Procedure Code - Grounds for allowing change of venue. F
Criminal Practice and Procedure - Bias - Apprehension of bias of trial court magistrate - Test for existence of reasonable apprehension of bias - Whether subjective or objective.
-Headnote
The applicants were facing various charges in the district court at Tarime. Somehow they became apprehensive G that they were not going to have a fair and impartial trial before any magistrate at that court. So they applied for a change of venue under s.80 of the Criminal Procedure Code. It was argued in support of the application H that the proper test was whether there existed in the minds of the accused persons a reasonable apprehension of bias.
Held: (i) In determining whether or not there is bias, the court should not be guided by the subjective view of I the accused, rather the test should be whether, in the circumstances of the case, right minded persons would think that there is a likelihood of bias;
1985 TLR p21
LUGAKINGIRA J
(ii) in the circumstances of this case, there is nothing which would make the minds of reasonable persons A doubt the competence of the Tarime District Court and all its Magistrates to determine the case without bias.
Case Information
Application dismissed. B
Cases referred to:
1. R. v George Tumpes [1968] H.C.D., n.416
2. Bhag Singh v Rex [1941] 1 T.L.R. (R) 133
3. Metropolitan Properties v Lannon [1969] 1 Q.B.577 C
4. Tumaini v R [1972] E.A. 411.
5. R v Taylor, etc., ex P Vogwill [1895] 14 T.L.R. 185
Mwale, for the appellants.

Judgment

Lugakingira, J.: This was an application of change of venue under s.80 of the Criminal D Procedure Code. The applicants who are facing various charges in the district court at Tarime are apprehensive that they will not have a fair and impartial trial if their case is heard by any magistrate of that Court and at the said court. Their main grounds as set out in the affidavit and argued by learned counsel Mr. Mwale are, I think, E

(a) that the case was mentioned nineteen times and no bail was granted;

(b) that when bail was finally granted it was coupled with difficult conditions which the High Court had to modify; F

(c) that the complainant is well off and threatens to secure imprisonment if the case is tried at Tarime; and

(d) that the trial Magistrate similarly threatens incarceration whenever the case comes up for mention. G

In general, Mr. Mwale submitted that in considering such an application the proper test was whether reasonable apprehension existed in the mind of the accused. H

First of all, I do not know which record Mr. Mwale and his clients had in mind when they spoke of 19 mentions without bail. What I have before me is a charge sheet dated 13 October, 1977. Next, the record reveals that the applicants (and 2 others) first appeared in court on that very day and after pleas had been taken Mr. Mwale I applied for bail. Again, bail was granted the same day even if on difficult conditions. I can find nothing else on the available record prior to 13 October, 1977. In the result, I

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LUGAKINGIRA J

am not certain that the allegation in ground (a) is not misleading. What is evident, on the contrary, is that the A disposal of this case has been held up by the actions of the applicants and their advocate. Thus, between 13 October, 1977 and 22 February, 1978, the trial awaited the application to this Court for bail and the result of B that application. Then on 2 March, 1978, Mr. Mwale wrote to the trial court proposing or confirming the hearing date for 25 April, 1978. And on the latter date he appeared in court and revealed that his clients were again applying to this court, this time for change of venue. From these facts I am unwilling to say that the trial court indulged in any procedural dereliction. C

The four grounds do not call for individual discussion at this stage. Suffice it to say that they were put forward generally as evidence from which bias could be inferred. I have already indicated that in Mr. Mwale's view the test is whether reasonable apprehension of bias exists in the mind of the accused. Mr. Mwale is not alone in D saying so. Similar views were expressed by this court, In re R. v George Tumpes [1968] H.C.D. n.416 and earlier in Bhag Singh v Rex [1941] 1 TLR (R) 133. In the latter case it was held by Wilson, J., I quote,

..... the proper test to apply ..... is not whether the Magistrate is actually prejudiced against the accused, but whether there E exists in the mind of the accused a reasonable apprehension that he will not have a fair and unprejudiced trial before the magistrate in question; and that in deciding what is a reasonable apprehension on the part of the accused

regard F must be had not to abstract standards of reasonableness but to the standard of honesty and impartiality of the accused himself and his degree of education and intelligence.

Attractive as the above view may sound, I am not prepared to say that it is not without its dangers. However G learned and intelligent the accused might be, can it be reasonably expected that his predicament and obvious wishes would leave him an entirely impartial man? Doesn't this test, which is wholly subjective, make the error of constituting the accused a judge of his own cause? I think, with respect, that the correct view is that the test H should be objective. The talk is therefore about "reasonable persons" rather that "reasonable accused". In Metropolitan Properties v Lannon, [1969] 1 Q.B. 577, for instance, Lord Denning, M.R. said (at p.599):

In considering whether there was a likelihood of bias, the court does not look at the mind of the justice himself or at the I mind of the chairman of the tribunal or whoever it may be, who sits in a judicial

capacity. It does not look to see if there was a real likelihood that he would or did, in fact, favour one side at the expense A of the other. The court looks at the impression which would be given to other people. Even if he was as impartial as could be, nevertheless if right-minded persons could think that, in the circumstances, there was a real likelihood of bias on his part, then he should not sit. B

This passage was quoted with approval by this court in Tumaini v R. [1972] E.A. 441 at pp.444. On my part I think that the objective approach commends itself to reason and common sense. I cannot persuade myself to C accept a view where the accused were permitted to set the standard for the guidance of the court and I must confess that I have never before encountered such a view except in the two cases first cited. Were the court to be guided by a subjective test I do not see how they could guard against accused persons who, in the words of D Day, J. in R. v Taylor etc ex p. Vogwill (1895),14 T.L.R. 185 would jump at "anything at any time which could make fools suspect." In the result, I hold that the correct principle is set out in the Metropolitan Properties and Tumaini cases.

Now, in this case, has anything transpired that in the minds of reasonable persons would disqualify the Tarime E District court and all its Magistrates from trying the case? I was told of 19 mentions without bail and I have already shown the falsity of the allegation. I was then told of bail being granted with impossible conditions. It was never suggested, however, that these conditions were imposed on account of any bias on the mind of the F trial magistrate. What transpires is that the trial magistrate overreached himself in his enthusiasm to meet the prosecutor's prayers. That, to my mind, was a wrong exercise of discretion which pointed to the magistrate's understanding of his duty rather than to a poisoned state of mind. I was finally told that the complainant threatens to secure the applicants' imprisonment if the case is tried at Tarime. Typically, that is jumping at "anything at any G time which could make fools suspect." The complainant is not the magistrate. If it is feared that he would attempt to use his alleged wealth to influence the verdict, there is nothing to prevent him from doing so regardless H of

the venue. On the other hand, I do not believe that the trial magistrate has been threatening to imprison the applicants if they have not been misbehaving in his court. If their constant interlocutory complaints are anything to go by I think they might have urged the magistrate to make the warning he did.
In summary I find nothing upon which reasonable persons would doubt the partiality of Tarime District Court and I all its magistrates. It seems that the applicants are self-persecuting by belief in their own
1985 TLR p24
imaginations. I dismiss the application and order that the trial proceeds at Tarime District Court before any A competent magistrate stationed there.
Application dismissed.
1985 TLR p24
C
[zRPz]HAMISI MASISI AND 6 OTHERS v REPUBLIC 1985 TLR 24 (HC)

Court High Court of Tanzania - Mwanza
Judge Mfalila J

December 21, 1978
MISCELLANEOUS CRIMINAL CAUSE 54 OF 1978
Flynote
Criminal Practice and Procedure - Bail - Conditions for allowing bail - Requirement to report regularly at the Police D Station in addition to cash bonds - Whether proper.
Criminal Practice and Procedure - Bail - Variation of orders for bail - Court powers to vary orders for bail - Criminal Procedure Code, s.127.
Criminal Practice and Procedure - Bail - Variation of orders for bail - Grounds for variation. E
Constitutional Law - Independence of the Judiciary - Executive interference with the judiciary - Magistrate in the exercise of judicial function succumbing to executive powers - Whether proper.
Administrative Law - Regional Commissioners - Regional Commissioner ordering detention of persons on the same F grounds for which they are charged in court and allowed bail - Whether lawful - Regional and Area Commissioners (Amendment) Act, 1963, s.7
-Headnote
The applicants had applied for bail in the Resident Magistrate's Court at Musoma. They were granted bail upon G execution of cash bonds of various amounts and upon additional requirements to report at the Police Station at stated times. Two days later a Senior State Attorney, saying he was acting on the instructions of the Director of H Public Prosecutions, moved the court to cancel the order for bail. The magistrate complied with the move mainly because it became known that immediately after the court had released the applicants on bail two days earlier, the Regional Commissioner for Mara Region had ordered their arrest and

detention, apparently on the I same grounds for which they were charged in court and admitted to bail. The magistrate therefore cancelled his previous orders for bail in order to avoid a conflict between the executive and the

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MFALILA J

judiciary. Subsequently, the Resident Magistrate forwarded the record to the High Court for review. A

Held: (i) In the terms of bail as awarded by the trial court, the additional requirements to report at the Police Station at stated times were undesirable, meaningless and practically a nuisance; B

(ii) under s.127 of the Criminal Procedure Code, orders for bail may be varied or cancelled by the same court which made them provided there are sufficient grounds for such variation or cancellation; in this case, no such grounds were given before the court to make the Resident Magistrate cancel or vary his own previous orders for bail; C

(iii) according to the concept of Independence of the Judiciary, once it is decided to take any person to court, then the entire judicial machinery should be left free to apply the rules applicable without harassment; the act of the Regional Commissioner to detain the applicants merely because they had been admitted to bail contrary to his personal views was wholly unjustified and illegal; D

(iv) constituting a judicial office a magistrate is required to disregard any extraneous pressures that might be applied on him, and to act only in accordance with the law, standing firm in defence of the people brought to E his court and in defence of the constitution and the law; in this case the Resident Magistrate was wrong in succumbing to executive pressure and cancelling his earlier orders for bail for fear that the Regional Commissioner would simply rearrest the applicants and render impotent the court order;

(v) once an accused person is taken to court, he is subject only to the jurisdiction of the court; the F reserve powers of Regional Commissioners to arrest and detain persons under the Regional and Area Commissioners (Amendment) Act, 1963 (Cap.461), are meant to deal with emergency situations and not with cases already taken to court under the ordinary penal laws of the land; therefore the Regional Commissioner had G no power under the law to rearrest and detain the applicants and his action was in breach of the constitution which the courts have to defend.

Case Information

Order accordingly.

No cases referred to. H

Kinabo, for the Republic

Judgment

Mfalila, J.: This is an application for variation of terms of bail imposed by the district I Court at Musoma. Applicants 1 and 2 namely Hamis Masisi and Shadrack Edward were granted bail

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MFALILA J

upon their executing bonds for Sh.50,000/= and two sureties each in the like sum. There was also an additional A order requiring them to report at the Police Station twice a day at the stated times. The rest of the applicants except applicant No.5 were granted bail upon their executing or rather depositing cash bonds of Shs. 30,000/= with two sureties to execute bonds in the same amount. The 5th applicant was admitted to bail after depositing B cash bond in the sum of Shs. 50,000/= with two sureties in the like sum. There were also additional requirements to report at the Police Station at stated times. Before I leave this aspect of the case I must state C that apart from the highly undesirable nature of the additional requirements, I have never really understood the meaning behind them. They are practically of no use except for their nuisance value. If an accused wished to abscond, he can do so during the intervals and in any case if the Court is unsure as to whether the accused will D appear for trial, then it should remand him instead of making these highly inconvenient orders of reporting at the Police Station. I would have thought that the Court would have been a better place. Anyway the Resident Magistrate cancelled these orders in a subsequent application by the Republic so that at the moment they are not in force hence as Mr. Kinabo correctly stated on behalf of the Republic, they cannot be subject of a variation E order by this Court. On this basis the application on behalf of all the applicants is dismissed.

I will however proceed to consider a request by the Resident Magistrate Musoma to review his order dated 16/12/78 by which he cancelled his order made on 14/12/78. After making the order dated 16/12/78 the F Resident Magistrate forwarded the record to this Court for two purposes -

(1) To review the approprieteness and legality of the order regarding cancellation of bail. G

(2) To discuss and determine the constitutional problem as to whether it is appropriate for the executive (particularly a Regional Commissioner) to order detention of an accused person for an offence the same accused is charged with in court, and in disregard of the Court's order that the same accused is entitled to bail. H

Mr. Kinabo addressed me on both these points and generally I agree with his view. Regarding the first question, by its very nature, an order for bail should be a subject of variation or cancellation by the Court which made it. I Indeed Section 127 of the Criminal Procedure Code gives this power. Additional grounds may be where it is disclosed on oath that the accused is on the point of leaving the jurisdiction of the

Court without the intention to return and face trial, or that the accused is a convict in another case or that while A out on bail the accused has committed another crime or that while out on bail the accused has committed another offence. These would be sufficient grounds for the Court to review, vary, or cancel its own order. Denial of such powers would inevitably lead to miscarriages of justice. I will next consider whether in this case the B Magistrate's order was proper.

As indicated when all these applicants appeared before him on 14/12/78 the Resident Magistrate released them on bail on various terms. Then two days later on 16/12/78 the Senior State

Attorney moved the Court to cancel C the orders of bail it had made on 14/12/78 in respect of all the applicants. The Senior State Attorney informed the Court that he was acting on the instructions of the Director of Public Prosecutions. Apart from this information, the Senior State Attorney had very little to add to what the prosecutor had told the Court two days earlier and with respect I do not think he made out a case for the Court to vary or rescind its earlier order. It D was at this stage that Counsel for the applicants informed the Court of the high handed behaviour by the Regional Commissioner for Mara Region, Mr. Wassira wherein he ordered the arrest and detention of all the applicants as soon as they were out of Court and had fulfilled their conditions for bail. The Regional Commissioner ordered E their detention on the same grounds or for the same offence they were charged with in Court. Thereupon the Resident Magistrate saw what he called "a conflict of powers" between the executive and the judiciary branches of Government. Therefore while recognising the fact that the Republic had made no case to make him do so to F avoid a conflict between the executive and the judiciary for as he saw it the Regional Commissioner would simply rearrest the applicants rendering his order for bail impotent.

The Resident Magistrate was wrong in both respects. He is not supposed to make judicial decisions on G expediency. His is a judicial office in which he is supposed to act only in accordance with the law despite any irrelevant pressures that might be applied on him. I note with regret the helplessness which the Resident Magistrate exhibited in the face of these pressures from the executive. So long as the executive is manned by H ordinary human beings who are bound to exhibit excesses in their enthusiasm to serve the Republic, he should expect such conflicts and pressures, and his duty is not to succumb as he did, but to stand firm in defence not only of the people brought to his Court, but also the constitution and practices of the United Republic as by law I established. Secondly the Regional Commissioner could not have re-arrested the accused persons again for the simple reason that he would have no power to do so, section 7(2) of the Regional and Area Commissioners Acts

(Amendment) Act 1963 is relevant. The Regional Commissioner could only do so if he wished to add to his list A of illegal and high handed actions. In that event appropriate action would be taken against him.

For these reasons the Resident Magistrate had no reason in law and in fact to vary and cancel his order for bail he made on 14/12/78. Accordingly his order dated 16/12/78 is set aside. B

Next I will consider the question posed by the Resident Magistrate namely whether it is appropriate for the executive branch of Government in this case a Regional Commissioner to order detention of an accused person C for an offence the same accused is charged with in Court in disregard of the Court's order that the same accused be admitted to bail. Quite clearly the answer is no and Mr. Kinabo who appeared for the Republic conceded this point and added that when the Director of Public Prosecutions instructed him to move the Court to cancel its D earlier orders for bail, he the Director had no knowledge that the Regional Commissioner had ordered the detention of these applicants in disregard of the Court's earlier order, although I

might add a report sent here by the Resident Magistrate indicated the contrary. But on the basis of the District Court record and a report sent to E this Court by the Resident Magistrate Musoma in his letter dated 18th December 78, it is clear that the Regional Commissioner for Mara Region in a move which was not only wholly unjustified but illegal decided to detain the applicants merely because they had been admitted to bail contrary to his personal views on the matter. I say his move was wholly unjustified because it having been decided to take the applicants to a Court of Law, F then only the rules applicable in the administration of justice became applicable and in their application the Court concerned should not be under any influence or pressure from any quarter, in other words the entire judicial machinery, the prosecution, the defence, the Court and the subject of the proceedings i.e., the accused persons G should be free from harassment however well intentioned. This is the meaning behind the concept of the independence of the judiciary. This concept is part of the laws of the United Republic.

I also said the move was illegal because the Regional Commissioner cannot cite any legal provision to back his H high handed action against these applicants. If he chooses to cite section 7 of the Regional and Area Commissioners Acts (Amendment) Act 1963 (Cap. 461) the short answer to this is that this Act gave him no such powers, in fact these applicants can sustain an action against him for unlawful detention. The wording of this section is self explanatory. I will quote it in full for the benefit of all concerned: I

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Section 7 - (1) When the Regional Commissioner has reason to believe that any person is likely to commit a breach of A the peace or disturb the public tranquillity, or to do any act that may probably occasion a breach of the peace or disturb the public tranquillity, and that such breach cannot be prevented otherwise than by detaining such person in custody, the Commissioner may arrest or order a police officer verbally or in writing to arrest such person. B

(2) A person arrested under the powers conferred by this Section shall be taken as soon as practicable before a C Magistrate empowered under Section 41 of the Criminal Procedure Code to deal with the case, and if such person is not brought before such a Magistrate within forty eight hours after he was taken into custody, he shall be released and shall not be again arrested for the same cause in pursuance of the powers conferred by this Section. D

(3) Where a Regional Commissioner arrests or orders the arrest of any person under the powers conferred by this Section, he shall at the time of making or ordering the arrest or forthwith thereafter record his reasons therefor in E writing. The Commissioner shall deliver a copy of his recorded reasons, or cause a copy whereof to be delivered, to the Magistrate at the time the person arrested is brought before Magistrate or, if such person has been released before he is brought before the Magistrate, as soon as practicable after such release. F

Provided that the production of a copy of recorded reasons under this Section shall not authorise the Magistrate to dispense with the provisions of requiring information to be given on oath G

(4) A Magistrate before whom a person is brought under this Section may in his discretion, detain such person in custody until the completion of the inquiry prescribed by Section 51 of the Criminal Procedure Code. H

Thus these provisions are so clear to any mind that their misapplication as was done in this case can either be deliberate or a conscious urge to harass others simply because one thinks he has the power to do so, and this is what made me particularly sad on reading these records that a top Government representative in the region can I choose to act in this fashion. In this case the applicants had already been arrested and taken to Court

under the provisions of the Penal laws of the land, there was therefore no room for the Commissioner to use the A reserve powers under Cap.461. Again as is clear from the provisions as set out above, these powers are meant to deal with an emergency situation, but having dealt with the arrested person as aforesaid, the B Commissioner must either release him or hand him over to the Court, but in any case he must make a report of his actions to the Court. Since in this case the Commissioner plucked the applicants from the Court, he can hardly be expected to have complied with the provision of Sub-section (3) of this Section: This is how, if the high C handedness of people like the Regional Commissioner for Mara Region is not ripped in the bud, the rights of individual citizens as guaranteed by the laws of a free country can be trampled under foot. More than that such actions give the Government a bad name. This is why they should not be allowed to happen and if they do dealt with severely. Illegalities in Government business cannot be allowed. D

The actions of the Regional Commissioner against these applicants has had another unfortunate result which is meant to be avoided by the concept of the independence of the judiciary and this is that the Magistrates at E Musoma District Court are in total confusion and disarray. They have reported that they fear handling any such cases of which more are said to be in the pipeline. It pains me to think that at this stage of our national life an individual leader can act in a way which is prejudicial to the proper functioning of the judicial process.

At this stage I have little to do except to tell the Magistrates at Musoma to continue performing their judicial F functions in this case and other cases in accordance with the text of their oaths that is without fear or favour. At the same time I would warn the executive at Musoma to stop interfering in the judicial process and that once an accused is taken to Court he is subject only to the jurisdiction of the Court. Any other actions on the part of the G executive at Musoma will be in breach of the Constitution of this country in which event this Court will have to move in its defence against anyone who will act in breach of its provisions. One of the duties of this Court is to protect the Constitution of the land.

There is one other matter. Counsel for the defence have informed this Court that the properties of all the H applicants have been seized by the Police at Musoma and their premises placed under police armed guard. If this be correct, I can only warn the Police at Musoma that their actions are unlawful and that they are bound to land the Government and themselves in a lot of trouble. The Regional Police Commander for Mara Region is I advised accordingly. The

Resident Magistrate Mara Region is directed to bring to the attention of the relevant authorities at Musoma the text of this Ruling
1985 TLR p31
Lastly since as I said the Resident Magistrate had no reason to cancel his earlier orders for bail in favour of the A applicants I make the following order:
All the applicants to be admitted to bail upon their executing bonds in the sum of Shs. 100,000/= each with two sureties in the like sum. The sureties must personally be approved by the Resident Magistrate Musoma both as B to their domicile and means to raise the required sum should need arise.
Order accordingly.
1985 TLR p31
D
[zRPz]C. 6237 P.C. EDWIN AND ANOTHER v REPUBLIC 1985 TLR 31 (HC)

Court High Court of Tanzania - Mtwara
Judge Mushi J

31 May 1982
CRIMINAL APPEALS 44 AND 45 OF 1981
Flynote
Evidence - Cross Examination - Accused gave an unsworn statement - Court questioned and cross-examined him - Whether proper. E
Criminal Practice and Procedure - Evidence - Accused questioned and cross-examined by court on his unsworn statement - Improper - Effect on the decision of the court.
Minimum Sentences Act, 1972 - Value of stolen property said to be over Shs.5,000/= - No evidence to establish such F value - Whether Minimum Sentences Act applicable.
-Headnote
The two appellants were convicted by the trial court on a charge of stealing by persons employed in the public service. During trial the appellants, Field Force Unit policemen gave unsworn statements. Then the trial G magistrate questioned and cross-examined them and in the process elicited evidence which otherwise would not be before the court. They were sentenced to five years imprisonment because the property was said to be worth over Shs.5,000/=. The appellants appealed against both convictions and sentences. H
Held: (i) An accused who makes an unsworn statement may be asked questions by the court in order to clarify any of the statements made by him; it is however quite improper for him to be cross-examined not only by the prosecution but also by the court; I
(ii) where cross-examination of an accused on his unsworn
1985 TLR p32
MUSHI J

statement has not occasioned a failure of justice the error becomes curable under section 346 of the Criminal A Procedure Code;

(iii) in this case the cross-examination of the accused on their unsworn statements went far beyond the permitted limits and would have occasioned a failure of justice except for the fact that such evidence was not necessary for the determination of the case; B

(iv) there was sufficient other evidence on which conviction could have been based;

(v) since under the Minimum Sentences Act, 1972 the value of the property stolen affects the sentence, it is important for the court to judiciously determine the value of property in issue; C

(vi) in this case the estimated value is on the border line and under such circumstances the appellants should have been given the benefit of doubt to the effect that the value could in fact be less than Shs.5,000/=

Case Information

Order accordingly. D

Cases referred to:

1. R. v Pirmin Kunjanga (1935)2 E.A. C.A. 64
2. Maina Ngotho v R. [1960] E.A. 453 E
3. Leonard s/o Kaseko v R. [1968] H.C.D. n. 45
4. Samson Ndegeleki v R. [1972] H.C.D. n. 197
5. Dinkerrai Ramksishan Pandya v R. [1957] E.A. 336
6. Martha Michael Wejja v Hon. The Attorney General and Three Others [1982] T.L.R. 35 F
7. Yuill v Yuill [1945] 1 All E.R. 183.

L.K.N. Kaduri, for the respondent.

Judgment

Mushi, J.: No. C6700 P.C. General Paul and No. C.6237 P.C. Edwin, who are respectively G 2nd and 1st appellant, were charged of and convicted with the offence of stealing by persons employed in Public service c/s 270 and 265 of the Penal Code and were each sentenced to five years imprisonment. They are appealing against such conviction and sentences. H

The two appellants were police officers and at the material time they were attached to Field Force Unit at Songea and were assigned garage work where they worked as mechanics. On the day in question PW1 - B.3261 CPL Maurus and PW2 - B.4053 PC Constantini, who are also F.F.U. Policemen, were just in an I evening walk when at about 8.00 p.m. they saw a bedford vehicle parked on the main road near the F.F.U. campus. Soon P.C. Edwin - 1st appellant approached the parked

vehicle and spoke with the driver briefly and walked across the road to certain huts. Immediately after that the A 2nd appellant, PC General came towards the vehicle carrying something. PW1 and PW2 were suspicious about the thing which the 2nd appellant was carrying. At that time the vehicle had been reversed and it was facing B Songea Town. 2nd

appellant was putting the long thing in the vehicle. PW1 and PW2 approached the vehicle and enquired from 2nd appellant as to what he was putting in the vehicle and he replied nothing. PW1 and PW2 recognized the thing which was being loaded into the vehicle as a windscreen. When the 2nd appellant was C further questioned he said that the windscreen belonged to the 1st appellant PC Edwin and that he was helping him to sell and would share the proceeds. As the conversation went on, the 1st appellant went nearer the scene and asked why he was being mentioned. The matter was reported to the police and the screen was also taken to the police. On the following morning, it was discovered that the screen had been removed from an Isuzu vehicle D belonging to UMITA vehicle which had been entrusted to F.F.U. at Songea and which was parked in the F.F.U. compound. There was evidence which conclusively established that the windscreen had been removed from the Isuzu vehicle parked at F.F.U.

1st appellant - Edwin denied the offence. He told the court that on the day in question and at the material time he E had gone to buy soap in a shop across the road. On his way back he saw a parked vehicle and near it he saw PW1 and PW2. As he saw nothing to warrant his stay he went home. On the following morning he was called to make a statement in connection with the windscreen. As the 1st appellant made unsworn statement, the F prosecution could not examine him. The trial magistrate however conducted an extensive cross-examination. I shall refer to this aspect of evidence later in my judgment.

The 2nd appellant, PC General, made an unsworn statement in which he stated that on the material date, he G found 1st appellant together with the driver of the motor vehicle, PW5 Hassan Omari, talking. As he (2nd appellant) was passing he was requested by 1st appellant to help to load something into the lorry. One of the items loaded was a windscreen. As they were loading PW1 and PW2 went nearer the vehicle. The 1st H appellant ran away. PW1 and PW2 then asked the 2nd appellant about the windscreen which he said he had just helped to load it. The 2nd appellant said that he was then ordered to take the windscreen to the police. The 1st appellant later appeared but he was uncooperative. The 2nd appellant stated that he was threatened by the I 1st appellant because he had mentioned him. As the 1st appellant threatened to kill the 2nd appellant, he went to sleep at the Quarter Guard. On this aspect, 2nd

appellant's statement is supported by the evidence of DW3 A.5967 Sgt. Alfred Banda who told the Court that A the 2nd appellant went to complain to him that 1st appellant had threatened to kill him because he had mentioned him in connection with the theft of windscreen. DW.3 gave a bed to 2nd appellant who slept at the place till B morning. There is also the evidence of DW.2 - Mwinyijuma Ramadhani. This DW2 told the court that he had been at the 2nd appellant house till about 7.00 p.m. when he left with 2nd appellant for the purposes of going for a drink. On the way they saw a bedford vehicle parked. The 1st appellant called the 2nd appellant to the place C where the vehicle was parked. DW 2 went on his way and he never saw 2nd appellant again that night. Lastly I wish to refer to the evidence of PW5 Hassan Omari. This PW5 was the driver of the vehicle in question. PW5 told the Court that when he reached near F.F.U. his vehicle heated up and required some water. He D reversed with the intention

of going back to the town, but before he left, 2nd appellant approached him with a request to help him carry a windscreen as he had waited for transport without success. PW5 agreed and waited for 2nd appellant to bring the windscreen. When the windscreen was brought, two people approached the vehicle and questioned the 2nd appellant about the windscreen. PW5 left the place but he denied to have seen1st E appellant at the scene, although 1st appellant says he went to the scene.

In their memorandum of appeal, just like in their defence, each is alleging that the other is the one who stole the windscreen. The question for determination before this court as was in the lower court is whether the appellants F are jointly guilty as charged or not. As for the 2nd appellant, he was caught loading the windscreen into the lorry. There is evidence of PW1 and PW2 whose testimony was believed by the trial court to the effect that 2nd appellant told them he was selling the windscreen on behalf of 1st appellant and they would share the proceeds. G If the 2nd appellant was given the windscreen by the 1st appellant as he claimed, both of them being mechanics, the 2nd appellant should have known that the 1st appellant could not own such an article. The 2nd appellant should have suspected the 1st appellant particularly that the article was being loaded at night time. PW1 and PW2 did not see any other load which was loaded into the vehicle as alleged by the 2nd appellant. I H do not accept that the 2nd appellant could just be ordered by 1st appellant to carry the windscreen at the time, when they just met accidentally as alleged by the 2nd appellant. The 2nd appellant carried the windscreen as he had an interest in the matter. As for the 1st appellant, immediately after the 2nd appellant was confronted by the I PW1 and PW2 he was mentioned to be connected with the windscreen. PW1 and PW2 had told the court that when the vehicle of PW5 parked, the 1st appellant approached the driver

and asked him "Vipi?" The driver PW5 denied to have met the 1st appellant at the scene that night and A obviously to have talked to him. But the 1st appellant in his memorandum of appeal, admits to have asked PW5 "Vipi?" To quote the appellant's ground No. 3 he says:

> 3. That: The evidence of PW1 No. B.3261 Cpl. Maurus is poor evidence in this case. Because he heard a word which B was sometimes wants to help a person especially when you put mind that it was night time then, I was a policeman. I was supposed to ask the owner of the alleged vehicle the word "Vipi?" which means what was "wrong". The driver of the alleged vehicle replied that "there was nothing wrong." C

This confirms the evidence of PW1 and PW2 and discredits his own testimony in the trial court. It also confirms that PW5 Hassan Omari was telling lies when he said he never saw the 1st appellant at the scene. Of course the D utterance of vipi to PW5 is capable of innocent interpretation as he wants to make this court believe. However what followed immediately after such utterance and the inconsistencies that have emerged, leaves one with no doubt that the statement was made with an understanding. Otherwise if it was not so why should PW5 E reply that there was nothing wrong when he infact said in his evidence that he had stopped because his vehicle had heated up. Again 1st appellant said that he returned at the scene and

found fellow policemen but left for home. He mentioned nothing with regard to windscreen. There was further evidence that 2nd appellant went to F spend a night at Quarter Guard because of threats from 1st appellant because he had been named to have been connected with the theft of windscreen. Why all this dramatic reaction to the extent of threatening to commit murder? There can be no doubts that the 1st appellant was displeased for being disclosed that he was a party to the theft. G

Earlier on in this judgment I stated that I would refer to the evidence of the appellants which was extracted from them by the trial magistrate in his extensive cross-examination after the appellants had made unsworn statements H from the dock. Under the circumstances the prosecution could not cross-examine the appellants on what they said but the learned trial magistrate conducted an extensive cross-examination on both appellants and extracted some evidence and forced them to produce statements which they had made to the police. The learned trial magistrate made use of the extracted evidence and documents in arriving at the decision in this appeal. The trial I magistrate's conduct went far beyond accepted limits provided by law. As the appellants were not represented by an advocate,

1985 TLR p36

MUSHI J

I requested the State Attorney to address me on the issue which I must say, new as he is, Mr. Kaduri has A commendably done the work. The law and practice on this issue is in my opinion quite settled. Section 206 of Criminal Procedure Code is all too familiar to many of us. Sub-section - (1) states as follows and I quote: B

206 - (1) At the close of the evidence in support of the charge, if it appears to the court that a case is made out against the accused person sufficient to require him to make a defence either in relation to the offence with which he is charged or in C relation to any other offence of which, under the provisions of section 181 to 189 (inclusive) of this Code, he is liable to be convicted, the court shall again explain the substance of the charge to the accused and shall inform him that he has the right to give evidence on oath from the witness box and that, if he does so, he will be liable to cross-examination, or to D make statement not on oath from the dock, and shall ask him whether he has any witnesses to examine or other evidence to adduce in his defence, and the court shall then hear the accused and his witnesses and other evidence if any.

The most relevant portion for this appeal in the above quoted section is of course this: E

...and shall inform him that he has the right to give evidence on oath from the witness box and that, if he does so, he will F be liable to cross-examination, or to make a statement not on oath from the dock,...

Reading the section as it is, it does not appear to me to present any linguistic ambiguity of any kind. In its plain G English language meaning, it means that an accused has a choice either to give evidence from the witness box on oath or to make a statement from the dock without oath. If the accused gives evidence from the witness box on oath, he shall be liable to cross-examination. On the other hand, if the accused makes a statement without oath it H clearly means he shall not be liable to cross-examination and in my considered view, it is not only

cross-examination by the prosecution but also by the court and assessors as well. This does not mean that the trial magistrate can write any unintelligible or meaningless statements from accused simply because the statement is not made on oath; the trial magistrate may seek clarification on the statement to make it understood. Seeking I clarification is not cross-examination. The effect and extent of putting questions to an accused who gives an unsworn

1985 TLR p37

MUSHI J

statement has been discussed in many cases. The earliest case in which it was discussed was R. v Pirmin A Kunjanga (1935) 2. E.A. C.A.64. In that case, the appellant was charged with murder. The appellant had made a statement in the lower court but that statement was not put in at the trial. The trial magistrate however interrogated that accused on the statement. On appeal the appellate court held: B

No question should be asked of an accused person who has not given evidence on oath unless for the purposes of explaining or clarifying something obscure or ambiguous in his unsworn statement. A discrepancy between two statements is not of itself obscure or ambiguous. C

Twenty five years later, the same court of Appeal for East Africa, as it then existed reiterated the finding in R. v Primin Kunjanga and went a little further by stating the consequence if the questioning caused prejudice to the D accused. This was in the case of Maina Notho v R. [1960] E.A. 453. In that case, the appellant made unsworn statement from the dock but the trial judge put some questions to him. The court discussing R. v Pirmin Kunjanga had this to say: E

With respect we entirely agree with the limitations there indicated which ought to be observed by a trial Judge in asking questions of a prisoner who has elected to make an unsworn statement. If, however, a trial Judge does exceed the limits F there indicated, the matter, in our view, amounts at most to no more than an irregularity which is curable under s.381 of the Criminal Procedure Code unless it "has in fact occasioned a failure of justice."

This was a Kenya case but the provision is similar to our section 206 of Criminal Procedure Code. Back home, G in recent years, this court guided by the decision of the Superior Court as sufficiently shown above, has made similar comments regarding the questioning of an accused who makes an unsworn statement. In the case of Leonard s/o Kaseko v R. [1968] H.C.D. 45 the appellant after making an unsworn statement was questioned H by the magistrate and cross-examined by the prosecution. The Honourable Mr. Justice Cross, as he then was, held:

(1) An Accused who makes an unsworn statement may be asked questions by the Court in order to clarify any of the I statements made by him. It is quite improper for him to be cross-examined by the prosecution.

1985 TLR p38

MUSHI J

(2) In the circumstances of this, case, the error in permitting cross-examination did not prejudice accused, and it is A curable under section 346 of Criminal Procedure Code.

To sum it up, the position is, and if I may be excused to use the apt words of Jonathan, Ag. J. as then was, in the B case of Samson Ndegeleki v R. [1972] H.C.D. 197 in which he said:

.... The court then seems to have gone completely out of its way and cross-examined the appellant. The learned resident C magistrate must have overlooked the provisions of S.206 which make it clear that, in the event of an accused person making an unsworn statement he is not liable to cross-examination. That means he is not liable to cross-examination by the prosecution and the court (including assessors) alike. Though occasions rarely arise, or course, there is nothing D improper for a court to put in a brief question to an accused person when making his statement, if to do so would give sense to what is otherwise incomprehensible, which indulgence, in my view, is desirable and certainly in the interests of E the accused and justice in that it affords him assistance to communicate reasonably intelligibly. Here this was not the case, for the court asked questions which were not calculated merely to clarify what was otherwise unintelligible. Though the procedure adopted here was unlawful, I am satisfied that it did not cause a failure of justice and is a curable irregularity. ... F

Turning to the appeal before me, the position is very different from the cases I have discussed above. Both appellants gave unsworn statement but after that the learned trial magistrate not only did he put questions to the G appellants, but carried out extensive cross-examination and made them produce statement made at the police. To complete the picture I think it appropriate to quote extensively the relevant portions of the evidence from the proceedings. I start with P.C. Edwin who was the 1st accused at the trial. After this appellant had made his unsworn statement, the court cross-examined him as follows: H

XXD by the court: (Using statement of the accused on getting it at request from P.P.) If I am shown my statement I can identify it. The recording officer is Sgt. Louo. The statement was read over to me by the recording officer. I signed the statement to show that what was recorded was correct as I had said it. I did not know I

that the statement would be used in evidence. (Shown statement and he admits to have made it). A

I tender my statement as exhibit X. I did not know the 3 others out of the 5 that I suspected. I identified the vehicle as that of SISI KWA SISI. I uttered the words JE, SISI KWA SISI VIPI? to PW5. The denial by PW5 that I ever talked to him is lies. It B is true that PW1 heard by discussion with PW5. I don't know the reason why PW5 had denied ever talking to me. I found the vehicle facing Tunduru direction but it was later found to be facing the town. I was telling lies when I said that after identifying PW1 and PW2 I left and then went to bed. It is true that the 2nd accused named me in connection with C theft. I was carrying out investigations about my co-accused so that he could be arrested. I had grudge with my co-accused and our bosses know about.

My witness will come to tell the court that when co-accused was being arrested I was not there. D

And similarly with P.C. General:

XXD by the Court: I remember to have made my statement at the police station. I can identify my statement. I request to E tender my statement Exh. Y. Before we made our

statement we were threatened with being put in the lock up. This is a case resulting from being threatened and implication. I know that the police force is where so as to be protective and fair F to the people and properties (court reads from words "hapo nilimwacha ...(to)... ilikuwa mali gani". Those words are not mine. There are those of of the R/O Sgt. Anatoli. I did not mention the load tied in sacks due to duress and threat (court reads "Baada ya kukiteremsha... (to.... kumpelekea mjini"). Those are words which I made to the recording officer. G Exh. A might be government property. I will call 2 witnesses. The first one was together with me on the day of incident. He was together with me on that day. The second witness is Willy. He is just like the first one, Cpl. Banda who was H guard commander on that day. He is going to tell the court about how 1st accused threatened me such that I decided to go and sleep at the quarter guard.

In his judgment the learned trial magistrate made use of the evidence extracted by cross-examination and to I illustrate my statement, on page 3 of the judgment the learned trial magistrate wrote:

1985 TLR p40

I had opportunity to cross-examine the first accused. His statement to the police has been produced by the first accused A and it is marked Exh. X. The first accused has admitted talking to PW5 the words "JE, SISI KWA SISI VIPI? and that the denial by PW5 that they never met and talked on the day of incident are lies. The first accused generally admits the B contents of Exh. X as those he made to the police.

Again at page 4 it is written:

In brief the totality of the defence is that each of the accused person has done his best, not only from his statement Exh. X C and Y but also in their defence, to shift blame from himself by implicating his co-accused.

And further down on the same page 4 the judgment stated: D

I have noticed that in the statements made to the police Exhs. X and Y that the accused persons have departed from them E in their defence. That is not without reasons except for the second accused because they were caught on the spot. There has not been advanced any reason by the 1st accused as to why he remained near the tea huts until he got arrested.

I have carefully considered the effect of questions put to the appellants and cross-examination thereto. I am of F the settled view that such conduct went far beyond the permitted limits; and having regard to the fact that the learned trial magistrate partly relied on the evidence extracted under the above circumstances in the assessment of the evidence and partly relied on it in arriving at the decision in this case, I am further satisfied that such G conduct prejudiced the appellant's trial and would have occasioned a failure of justice except for the fact that such evidence was not necessary for the determination of this case. There was sufficient other evidence on which conviction could have been based.

This court being the first appellate court, is duty bound to re-evaluate the evidence which was before the trial H court and draw its own inferences and conclusions, where the circumstances demand as in this case, as would have been done by the trial court had it properly directed its mind to the evidence. For this proposition of law I I am guided by the decision in Dinkerrai Ramksishan Pandya v R. [1957] E.A. 336. This was a decision of the former Court of appeal for

East Africa which is still sound. The same principle has been restated recently by Tanzania Court J
1985 TLR p41
MUSHI J
of Appeal in the case of Martha Michael Wejja v Hon. the Attorney General and Three Others, which is A Court of Appeal Civil Case No. 3 of 1982 (unreported) in which it quoted with approval the same principle in the case of Yuill v Yuill [1945] 1 ALL. E.R. 183. Clearly in this case the learned trial magistrate opted a wrong approach in evaluating the evidence. As abundantly demonstrated above, I have carefully carried out the duty of B this court and have scrutinised, analysed and evaluated the evidence before the trial court completely excluding and ignoring the evidence obtained by trial magistrate on cross-examination on the appellant and come to the conclusion that the rest of the evidence as there was in this case left no doubts whatsoever as to the guilt of the C appellants. The appeals against convictions are thus dismissed.
The appellants were sentenced to five years' imprisonment because the property stolen was said to be worth over Shs.5,000/=. Under the Minimum Sentences Act, the value of the property stolen affects the sentence. It is D therefore important for the court to judiciously determine the value of property in issue. Where exact value can be established this should be done. Where only approximate value is given the basis of such approximation must be given. In this case it is stated in the charge sheet that the windscreen was worth Shs.5,000/=. One witness E during the trial stated that the value was between Shs.5,000/= and 6,000/= but the record is silent as regards the basis of the witness's opinion of the value of the windscreen. The court accepted such assessment without analysis and scrutiny. A windscreen of an Isuzu, as was in this case, is an item whose exact price can be established without difficulty and the courts should not allow prosecution laxity to the detriment of an accused. F Even, then, in this case, the estimated value is on the border line and under such circumstances, the appellants should have been given the benefit of the doubt to the effect that the value could infact be less than Shs.5,000/=. G The sentence of five years is reduced to that of three years.
Order accordingly.
1985 TLR p44
A
[zRPz]FESTINA KIBUTU v MBAYA NGAJIMBA 1985 TLR 44 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Kazimoto J

23 September, 1986
(P.C.) CIVIL APPEAL 64 OF 1985 B
Flynote

Family Law - Custody of children - Child born out of a void marriage - Whether the mother of the child has an absolute right to custody.
Family Law - Custody of children - Child expresses wishes with whom she wants to live - Whether such wishes to be given weight. C
Family Law - Maintenance - Assessment of - Factors to be taken into consideration.
Family Law - Custody of children - Factors to be taken into account before giving custody of a child to a party.
-Headnote
Marriage between the appellant and the respondent was declared null and void because the respondent was D incompetent to marry under the provisions of section 38 (c) and (e) of the Law of Marriage Act, 1971. When the marriage was annulled the appellant was five months pregnant. She then gave birth to a baby girl. When the E child was two years old the respondent instituted proceedings for the custody of the child. The Primary Court awarded him custody of the child. On appeal by the appellant to the District Court the decision of the Primary Court was overruled. Custody was given to the appellant until the child reached the age of seven years. The F court ordered the respondent to pay Shs.50/= a month towards the maintenance of the child.
When the child reached the age of seven years the respondent sought to be given custody of the child. The case was before a Primary Court which heard both the parties and also heard the child who expressed that she wished G to live with the appellant. Custody of the child was given to the respondent. The appellant's appeal to the District Court was not entertained.
She appealed to the High Court challenging the award of custody of the child to the respondent. She also attacked the maintenance award as being too low. H
Held: (i) The mother's entitlement to custody of a child born out of a void marriage is not absolute; it is conditional upon the absence of agreement between the parties or court order vesting custody to another person;

(ii) the wishes of a child of tender age should not be permitted to subvert the whole law of the family or I to prevail against the desire and

authority of a parent unless the welfare of the child cannot otherwise be secured; A

(iii) under the circumstances of this case it was not in the best interest of the child to have given custody to the respondent which would have adversely affected her educationally and psychologically; B

(iv) in deciding what amount of maintenance should be paid the court should hold an enquiry as to the means of both parents in order to arrive at a just decision; where applicable the court should take into account the customs of the parties and the conditions prevailing at any particular time. C
Case Information
Appeal allowed.
Cases referred to:

1. Abdallah Salum v Ramadhani Shemdoe [1968] H.C.D. n.129
2. Re O'Hara [1900] 2 IR 232 D
3. Juma Kisuda v Hema Mjie [1967] H.C.D. n. 188

F. Mbuya, for the appellant

Komba, for the respondent E

Judgment

Kazimoto, J.: The appellant is appealing against the decision of the Courts below which granted custody of a child born out of the void marriage to the respondent. This appeal has a chequered history and I will explain. In 1974 the appellant and respondent were married and on 31st December, 1974 their F marriage was declared null and void. At that time the appellant was five months pregnant. She gave birth to a baby girl in 1975. These proceedings concern this child. In 1977 the respondent instituted proceedings for the custody of the child. This was in Kimamba Primary Court Civil Case No. 13 of 1977. The Primary Court G awarded custody of the child to the respondent. The appellant appealed to Kilosa District Court in Civil Appeal No. 9 of 1977. The appeal was allowed and the child was placed in her custody until she reaches the age of seven years and at the same time the District Court made an order that the respondent should pay Sh.50/= per month towards maintenance of the child. The judgment of the District Court was delivered on 20th October, H 1977. On the following day, that is on 21st October, 1977 the same magistrate made the following order which read as follows:

Order: In this case, upon considering the circumstances of the case and under the Law of Marriage Act 1971 I find that I the

1985 TLR p44

KAZIMOTO J

issues in this case are matrimonial matter in that to be decided under the Law of Marriage Act. If that is so the appeal to A this Court should not have been entertained as per Section 80 of the Marriage Act 1971, wherefore this appeal should have been lodged straight to the High Court. This appeal thus as I say was wrongly entertained and determined in this B Court and I hereby DECLARE THE APPEAL JUDGMENT TO THIS CASE AS TOTALLY A NULLITY. The records are to be prepared and forwarded to the High Court meanwhile the parties should be informed of this Musing. (sic). C

There is nothing on record to suggest that the file was forwarded to the High Court. Nor is there evidence to show that the parties were informed. Be that as it may no further steps were taken by either party until in 1984 D when the respondent decided to execute the decree in Civil Appeal No.9 of 1977 before Kimamba Primary Court. The Primary Court Magistrate heard both the appellant and the respondent. The Primary Court Magistrate also heard the child in question and enforced the decree by awarding custody to the Respondent. It ordered the respondent to pay arrears amounting to Shs.5,200/= to appellant as maintenance. The appellant was E dissatisfied and she appealed to the District Court at Kilosa in Civil Appeal No. 18 of 1984. The district Court struck off the appeal from the register. The appellant is appealing against that decision on six grounds as follows:

(1) The learned District Magistrate had no jurisdiction to strike out the appeal. F

(2) The learned Magistrate erred in law in holding that the respondent as father of a child born out of void marriage is entitled to the custody of a child born out of such void marriage. G

(3) The learned Magistrate erred in failing to consider the welfare of the child in awarding custody of the child to the respondent.

(4) The learned magistrate erred in failing to consider the rise in the cost of living in assessing the amount of maintenance to which the child was entitled. H

(5) The learned magistrate erred in failing to take into account the fact that the child had clearly stated she would like to live with the appellant and not with the respondent.

(6) The learned magistrate failed to take into consideration the fact that the child never knew her father and has never lived with her father since she was born in 1975. I

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On the first ground of appeal Mr. F.S. Mbuya learned counsel for the appellant has argued that the District A Magistrate has no jurisdiction under the Magistrates' Courts Act 1963 Cap 637 and Magistrates' Courts Act. No. 9 of 1984 to strike out the appeal. He submits that the learned District Magistrate was wrong in striking out B the appeal. As regards the second ground of appeal, the learned counsel has submitted that the respondent is not entitled to custody of a child born out of void marriage and referred the court to the Local Customary Law Declaration Order GN. 279 and Section 128 of the Law of Marriage Act, 1971 where it is stated that a mother of child born out of a void marriage is entitled to the custody of the child born out of such void marriage. He C further argued that from the proceedings it is clear that the child has always been in the custody of the appellant who has provided for her maintenance, that the child has never lived with the respondent and she even does not know him. It is submitted by learned counsel that the magistrate, erred in not considering the welfare of the child D when it ordered that the respondent should have custody of the child. Mr. Mbuya further submits in support of ground four that the magistrate did not take into account, when he ordered maintenance of Shs.50/= per month, the rise in the standard of living and the rate of inflation. He submits that Shs.50/= per month was clearly E inadequate. He referred the court to the case of Abdallah Salum v Ramadhani Shemdoe [1968] HCD No.129 in support of his submission. In further support of his argument on the point he referred to the Affiliation Act which fixes the rate of maintenance at Shs.100/=. On the fifth ground Mr. Mbuya learned counsel argues that the child has expressed her wishes to live with the appellant. He submits that the court should not have F disregarded the views of the child. As regards the last ground Mr. Mbuya has submitted that it has been covered by the previous grounds and prays that the appeal be allowed, the judgment and decree of lower court be set aside and the appellant be awarded maintenance at the rate of Shs.600 per month for the last ten years including G educational costs and that the respondent be condemned to pay costs of this appeal. On the other hand Mr. Komba learned counsel for the respondent has strongly submitted that on record there was no judgment on 4th October, 1984 from which this appeal could arise. On ground one of appeal Mr. Komba has submitted that the H district magistrate was right in striking out the purported appeal as the appellant was also the

appellant in Civil Appeal No. 9 of 1977 which was allowed in her favour. If she was dissatisfied, argues Mr. Komba, she should have appealed against the decision. She did not do so and Mr. Komba submits that the matter is res judicata I and she cannot appeal. Regarding ground two Mr. Komba has submitted that the appellant was married to the respondent and a

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certificate of marriage was issued. He further told the court that according to the certificate of divorce dated 31st A December, 1974 the appellant was five months pregnant and that the appellant does not dispute that the respondent is the father of the child. He submits that as the child is above seven years he is, in law, entitled to the B custody of the child. Regarding the welfare of the child Mr. Komba has submitted that the magistrate considered that fact that the respondent is better placed to take care of the child as he is a rich man and that at present the child is living with the respondent and that the appellant is married to an unemployed man with three C children. Mr. Komba further submitted in reply to ground four of appeal that the cost of living in 1977 was lower than in 1986 and that if appellant was not satisfied with the order of maintenance she should have appealed against it. As regards ground five and six of appeal Mr. Komba has submitted that the allegations are not true. He argues that the child knows the respondent, that she is living with him and he is paying for her education and D maintenance. He therefore prays that the appeal be dismissed with costs, that the decision of the lower court be upheld.

In a brief reply Mr. Mbuya has submitted that the problem in this appeal stems from Civil Appeal No. 9 of 1977 which was declared a nullity by the same magistrate and that therefore the Primary Court cannot implement a E judgment which is a nullity. As regards custody Mr. Mbuya has submitted that under Section 133 of the Law of Marriage Act 1971 the Court has power to vary or rescind any order of custody or maintenance of an infant on the application of any interested party. He submits that the appellant is requesting the court to invoke Section F 133 of the said Act. Regarding the welfare of the child Mr. Mbuya invites the court to consider the provisions of section 125(2) of the Law of Marriage Act, 1971. The appellant has sent the child to a boarding school. I am prepared to assume that this has been done with the blessing of the appellant's husband. The respondent is, G according to the record, married to two wives. There is further evidence that the respondent did not make the payment of Shs.50/= maintenance costs ordered by the court. The Court has been told that the respondent is a rich man. These are some of the factors which should be taken into consideration in this case.

As regards Mr. Mbuya's complaints that the court did not give effect to the wishes of the child I am of the H considered view that the court is entitled to disregard her wishes. She was about nine years old and I am not persuaded that a child of that age is capable of forming an independent opinion. Secondly, and as already noted above she has lived with the appellant ever since she was born and as further stated she did not know the I respondent. It was therefore expected of her and I think natural that she should have preferred to live with the appellant

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whom she knows rather than with respondent a stranger to her. Regarding wishes of children in custody A proceedings Fitzgibbon L.J. stated in Re O'Hara (1900) 2 IR 2323 at page 240 as follows:

... The wishes of a child of tender age must not be permitted .... to subvert the whole law of the family or to prevail against B the desire and authority of the parent, unless the welfare of the child cannot otherwise be secured.

The child being nine years old cannot form an independent opinion and the court was entitled to disregard her C wishes. But I think as I have tried to illustrate above the magistrate did no consider the welfare of the child when it awarded custody to the respondent. The child has been in a boarding school. The respondent did not maintain the child since she was born despite the court order to pay monthly maintenance since 1977. He paid the lump D sum when he was given custody of the child in June, 1984. Appellant's husband appears to have regarded the child as his and with his support has the child been educated in a boarding school. I think that under the circumstances it was not in the best interest to have given custody to the respondent which would have adversely E affected her educationally and psychologically. That ground succeeds. This also disposes of ground 2 of appeal.

I now come to ground four of appeal. It concerns the amount of maintenance. Mr. Mbuya has strongly attacked the award of Shs.50/= per month as maintenance as being inadequate. Mr. Komba has countered by submitting F that if she was dissatisfied she should have appealed. I agree with Mr. Komba that the appellant should have appealed if she were dissatisfied but in view of the manner the district magistrate handled the case I hesitate to attribute the blame to the appellant. I will deal with that aspect shortly in the following grounds of appeal. In deciding what amount of maintenance should be paid the court should hold an enquiry as to the means of both G parents in order to arrive at a just decision. The court should, where applicable, take into account the customs of the parties and the condition prevailing at any particular time. In Abdallah Salim v Ramadhani Shemdoe. [1967] HCD 55 where Georges C.J. (as he then was) was confronted with the issue of "Mtonga" i.e. one cow,(as he then was) was confronted with the issue of "Mtonga" i.e. one cow, as the traditional reward of H maintaining a child of another he had to overrule the decision on the ground that it was not enough at the present (that was in 1967) to bring up a child and educated him for the value of a cow (which was by then costing Shs.50/=). That decision was followed by Said J. (as he then was) in Juma Kisuda v Hema Mjie [1967] I HCD.188. In both cases the maintenance was increased. In increasing the amount

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of maintenance the court took into account the "village life" in both Lushoto and Singida Districts and assessed A maintenance at Shs.100/= per month. The proceedings in the present appeal were instituted in 1977. It can be said that village life in Kilosa District in 1967 is the same as in most Districts, in this country. If that is accepted B then Shs.50/= was clearly inadequate. But village life in 1977 could never be the same as in 1967. There have been great

social and economic changes affecting the whole rural life which has been turned into semi urban life. People have moved into new village settlements. These moves have affected the standard of living. Certainly C Shs. 50/= was not enough to buy the essentials for a child. From what has transpired in this appeal the appellant is a wealthy man. Had the learned Magistrate considered these factors he would not have made the order of maintenance of Shs. 50/= per month.

On ground 2 of appeal the issue is whether the respondent as father of a child born out of void marriage is D entitled to the custody of such a child. It is not disputed that the respondent is the father of the child. It is admitted that the appellant was made pregnant by the respondent before they were divorced on the grounds that the marriage was null and void as the respondent was incompetent to marry under the provisions of Section 38(c) E and (e) of the Law of Marriage Act 1971. Mr. Mbuya submits that under Rules 178 and 181 (c) of the GN. 279 of 28th June, 1963 and under Section 128 of the Law of Marriage Act 1971 children born out of void marriage belong to the matrimonial side. Mr. Komba has submitted that as there was a valid marriage during which the child was conceived the respondent is entitled to the child. Section 128 provides: F

128. Where a marriage is a nullity or is annulled under Section 96 the mother shall, in the absence of any agreement or order of court to the contrary, be entitled to the custody of the infant child, if any, of the marriage. G

In my view the mother's entitlement to custody of such a child is conditional upon the absence of agreement between the parties or whether the court makes no order to vest custody to another person. Section 128 quoted above does not confer absolute entitlement to the appellant and the court has discretion to decide to whom the child should be placed. H

Ground number one of appeal deals with the jurisdiction of District court to strike out appeals. As stated by Mr. Mbuya and I think correctly so, powers of the District Court on appeal or revision are contained in section 16 I and 17 of Cap. 537 the law applicable when appeal was heard by District Court. These Sections did not vest on the District Court with powers to strike out an appeal. It was therefore clearly wrong

for him to strike out the appeal. Mr. Komba then submitted that there was no judgment on 4th October, 1984 A from which an appeal can lie. The learned district magistrate had made an order and an order of a district court is appealable at the instance of an aggrieved party under Section 21 of Cap. 537 and now section 25 of the Magistrate's Courts Act. No. 2 of 1984. The Appeal against that order is clearly competent. B

For the reasons given above the appeal is allowed. The judgment and decree of the district court is set aside. It is ordered that the appellant should have custody of the child and respondent should pay Shs. 250/= per month as maintenance for 10 years from 1977 as her cost of maintaining the child. She is also granted costs of this C appeal and the court below.

Appeal allowed.

D

[zRPz]MOROGORO STORES (1976) LTD v NATIONAL BANK OF COMMERCE 1985 TLR 49 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Kazimoto J

13 November, 1986
CIVIL CASE 98 OF 1984 E
Flynote
Banking - Banker-customer relationship - Plaintiff's employee sent to deposit cash - Employee returns with a fake F pay-in-slip - Bank denied having received the money - Whether a fake pay-in-slip evidences a deposit with the bank - Whether bank is duty-bound to warn customers of fake stamps.
-Headnote
The plaintiff sent his employee to deposit Shs.31,200/= in his account with the defendant at his Branch. The G employee returned with a pay-in-slip which bore the defendant's rubber stamp. When the Bank statement was checked the above amount was not credited in the plaintiff's account. The plaintiff sued the bank to recover Shs. 31,200/= plus interest thereon. H
Held: (i) The pay-in-slip was not an authentic document and the money allegedly deposited with the defendant was not in fact deposited;
(ii) the defendants cannot be held liable merely because there is no warning to customers of fake stamps.
Case Information
Judgment for defendant. I
1985 TLR p50
Cases referred to:
1. Lewes Sanitary Steam Laundry Company (Ltd) v Barclay and Co. Ltd. [1906] T.L.R. 737 A
2. The Kepitigalla Rubber Estates, Ltd. v The National Bank of India. Ltd [1909] 2 K.B. 1010 B
R.C. Kesaria, for the plaintiff
Ngalo, for the defendant
Judgment
Kazimoto, J: The plaintiff, Morogoro Stores (1976) Ltd. has been a client of the C defendant the National Bank of Commerce, City Drive Branch Dar es salaam since 1976. On 27th June, 1983 the plaintiff alleges, and the defendant denies, that he deposited the sum of Shs. 31,200/= in his account with the D defendant. As the defendant has denied having received the money the plaintiff now sues the defendant to recover the said sum of Shs.31,200/= plus interest and costs.
At the hearing five issues were agreed and framed and in my view the case depends on issue one which if established the rest will automatically follow. The issues are: E

(a) Did the plaintiff pay in his bank account Shs.31,200/= as shown in Exh. A to the Plaint?

(b) Did the defendant fail to credit the plaintiff's account with the said sum? F

(c) Has the defendant wrongfully converted the said money to his own use and wrongfully deprived the plaintiff the use thereof?

(e) What reliefs are the parties entitled to?

Zainabu Noordin (PW.1) testified for the plaintiff. He is the General Manager of the company. He told the court G that his company has been operating an account with the defendant since 1/7/1976 and that one Shaban Mohamed was depositing the money on behalf of the company. He stated that the said Shaban Mohamed had been working for the plaintiff for about five years and that he (PW.1) had always given Shaban Mohamed cash H to bank and that he would return with pay-in-slip to him. He told the court that on 27/6/83 he gave Shs.31,200/= to Shaban Mohamed to bank and he banked the money and then returned with pay-in-slip which I bore the defendant's bank rubber stamp. He told the court that when he checked his bank statement on 19/7/83 he found that the money was not credited in his account. He said later Shaban Mohamed was arrested, and charged with theft by servant but was

acquitted. He stated that he trusted Shaban Mohamed, that he has never failed to deposit cash in his account A and that when he saw the pay-in-slip he understood that the money was banked. When cross-examined by Mr. Rutagatina learned defence counsel for the defendant PW.1 stated that he would not know if the bank stamp was B real or fake. He denied having known code number of the defendant's bank. He stated that the defendant bank has no code number and that all that he knows is that there is a teller's number. He further stated that he would not know if the money was deposited with the defendant or Shabani Mohamed had stolen it. When re-examined he denied that he was given specimen stamps and that there is no way of ascertaining the teller's C stamp.

Roman Peter Ndanzi (DW.1) an accountant with defendant informed the court that he has been working with defendant since 1979 and that he knows the plaintiff as one of their clients. He told the court when a customer banks money he fills a pay-in-slip and presents it to the teller. The slip bears the bank's stamp, the initials of the D teller, the teller's number and the code number of the bank. He denied that on 27th June, 1983 the plaintiff deposited cash with the defendant. He told the court that the defendant's Code number is no.2 and that annexure E A has only teller's numbers and it does not have the defendant's code. He has produced a copy of pay-in-slip Exh. D1 which he alleges to be authentic, and that annexure A to the plaint is a fake pay-in-slip. When cross-examined by Mr. Kesaria the learned counsel for the plaintiff DW.1 admitted that there is no warning to warn customers. He admitted that annexure A has initials of the teller. He denied that the money was deposited. F He further stated that he would not have credited the money without pay-in-slip. He admitted that if the money is deposited interest would have been paid.

As indicated earlier on the case hinges on issue number one. If the hinges don't withstand the weight they collapse. DW.1 denies that the money alleged to have been deposited vide Annexure A was infact deposited as G it lacked the features peculiar to the defendant's bank stamp. I have carefully examined annexure A and compared it with Exh. D1. Exh. D1 is in respect of a deposit which the plaintiff made. Whereas Exhibit D1 shows that the money was received by teller 2, annexure A to the plaint does not show clearly the teller's H number. Again in Exhibit D1 there are the following words "City Drive Br.2, D'Salaam (I have omitted the words National Bank of Commerce). In Annexure A to the plaint there appears the following words, as is relevant "City Drive Branch". It should be noted that in Exhibit D1 the word "Branch" is abbreviated followed I immediately with the Figure "2" and then followed by the word "D'Salaam". It should also be noted that in annexure A to the plaint the

word "Branch" is written in full, figure "2" is missing and the word "D'Salaam" is written in full and appears below A the words "City Drive Branch". Exhibit D1 shows two deposits made by the plaintiff on 28/6/1983. Even to the unaccustomed but scrupulous observer he would not have failed to notice the naked difference between B annexure A to the plaint and Exhibit D1. Having pointed out these vital and basic differences between the two documents tendered in evidence I am left in no doubt in my mind that annexure A to the plaint is not an authentic document and the money allegedly deposited with the defendant was not in fact deposited. Mr. Kesaria learned C advocate referred me to two English cases Lewes Sanitary Steam Laundry Company (Ltd) v Barclay and Company (Ltd) [1906] TLR page 737 and The Kepitigalla Ruber Estates, Limited v The National Bank of India, Limited (1909) 2 KB 1010. Both these cases deal with the defence of estoppel by negligence. In the D Lewes Sanitary Steam case the directors of the company appointed the son of the Chairman as secretary of the company and allowed the secretary to have the custody of the company's cheque book and bank pass-book. In order to draw a cheque the signature of the secretary and a director were required. The secretary forged the E signature of a director to a number of cheques purporting to be drawn on behalf of the company, and obtained payment from the company's bankers. On an action brought against the defendant to recover the amount the defendants raised the defence of negligence by estoppel. Kennedy J., held, after quoting a number of authorities F that:

> But in order to relieve the banker from the consequence of paying money upon a forged cheque, it is not enough for the banker to show that the conduct of his customer, wilful, careless or wasteful or all, enabled the fraud to be committed. He G must show that the customer caused him to pay the money upon the forged cheque. It is not enough to show that the customer gave occasion for his so paying .... The carelessness of the customer or neglect of the customer to take precautions unconnected with the act itself, cannot be put forward by the banker as justifying his own default.

The facts in Kepitigalla's case above quoted are exactly the same as the Lewes Sanitary Steam case. But I H tend to think that the principles in these two cases cannot be applied to the facts in the present case. Whereas in these cases the servants of the plaintiff companies forged

cheques which enable the defendant companies to pay I funds out of the plaintiffs accounts, in the present case it was established that the defendant never received and therefore never paid any money out of the plaintiff's

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account. I think the defendant would be liable if it were established that Annexure A to the plaint were authentic A and the defendants servants did not enter the amount in the plaintiff's account. I gather from cross-examination by Mr. Kesaria that as the pay-in-slip is prepared and issued by the defendant, that once a customer has filled in the pay-in-slip which is stamped by the defendant's stamp, that as there is no warning to warn customers of fake B stamps, then the defendant should be held liable. Yes the defendants will be held liable if the pay-in-slip contains the defendants bank rubber stamp. But in this case Annexure A does not have, as demonstrated above, the defendant's rubber stamp or even a semblance of such stamp. I am not persuaded to hold the mere fact that C there is no warning about fake stamps should render the defendant liable.
For these reasons, having found that plaintiff did not pay in his bank account the sum of Shs.31,200/= as shown in Exhibit A to the plaint, I am satisfied that the plaintiff's case fails as the defendant would not have done what is D alleged in issues (b) and (c) nor is the plaintiff entitled to any interest claimed in issue (d). Consequently I dismiss the plaintiff's claim with costs.
Judgment for the defendant
1985 TLR p53
F
[zRPz]HASSAN MATOLLA v KADHI WA MSIKITI, MWINYI MKUU STREET 1985 TLR 53 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Ruhumbika J

21 October, 1982
(PC) CIVIL APPEAL 2 OF 1982 G
Flynote
Islamic Law - Inheritance - "Wakf" dedicating deceased's house to the Mosques for religious reasons - "Wakf" conditional upon failure of deceased's daughter coming forward to inherit - Deceased's daughter did not show up - Deceased's brother's son claimed to be a rightful heir - Whether the mosque is entitled to any share in the property of the deceased. H
-Headnote
The deceased, a father of only one child who was living outside the country, dedicated by "Wakf" his house to a I mosque for religious reasons. The "wakf" was given conditional upon

failure of the deceased's daughter coming forward to claim inheritance. After his death the daughter did not

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RUHUMBIKA J

show up. However, a son of the deceased's brother applied in a Primary Court for and was granted letters of A administration of the estate of the deceased. He also claimed the right to inherit the house of the deceased. The Primary Court decided that he was entitled to inherit the estate of the deceased as heir under Islamic Law. The B Court, however, required him to cash down 23,330/= to the mosque in terms of the "Wakf", being 1/3 of the value of the house. The appellant appealed against the court's order that the appellant should pay Shs.23,330/= to the mosque before he could inherit the house.

Held: (i) The appellant has the right to inherit the house and the dedication of the house to the mosque in the C "Wakf" is rendered non-effective thenceforth by the reason of the act of the appellant inheriting the house;

(ii) the requirement to pay 1/3 of the value of the house to the mosque would arise only if the deceased D had set up an unconditional "Wakf" dedicating the house to the mosque permanently after his death without the clause that the house should pass to the heir when that heir was available.

Case Information

Appeal allowed. E

No case referred to.

Judgment

Ruhumbika, J.: This is a second appeal. The appeal involves the Islamic law of inheritance F for Moslems of Sunni Section.

The appellant, Hassan Matolla, applied to the Primary Court of Kinondoni in Mirathi Civil Case No. 5 of 1981 to be appointed the administrator of the estate of the late Selemani Matolla, who died intestate. The deceased G left behind a house on Plot No. 10, Mwanamsali, Kinondoni District. The appellant also claimed before the same court to be the rightful heir of the estate of the said deceased person.

The application was objected to by the Kadhi of Mwinyimkuu Mosque, in that the deceased had dedicted that house in a "Wakf" deed to the mosque. H

An appropriation by way of a "Wakf" may be either by act inter vivos, or by will. But if it is made by will or death-bed gift it is subject to the same restriction as bequest in favour of an individual, namely that it cannot I operate upon more than one-third of the next assets, unless the heirs consent. That is the general jurisprudential point of view regarding "Wakf" document which becomes effective at the death of the testator.

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In considering the application of the appellant, the Primary Court had to have a full hearing of the objection. The A objector called several witnesses to testify. The Khadhi himself (Jaffar Abubakari) testified before the Primary Court. He told the Court how the deceased established

the "Wakf" dedicating his house to the mosque for religious reasons, as he had no child of his own living in this country. The deceased set up the "Wakf" before B some kind of a conciliation committee of the CCM Branch of Mzimuni, Kinondoni District. This was on 26th December, 1979. The execution of the "Wakf" was attested by three members of that committee, the chairman C of the committee, the secretary and a committee member. The document had to be executed in the presence of those witnesses as he could not write. In addition to that, three members from the mosque authority signed the "Wakf" to signify that they had agreed to the terms set out in that "Wakf". The deceased was illiterate and for that reason he could not sign the "Wakf". D

The evidence of all those who testified before the Primary Court for the objector proved that it was the intention of the deceased to dedicate the house in that "Wakf" to the mosque in question, as he had no child of his own living in Tanzania. However, it was a condition set out in that "Wakf" that should the deceased person's sole E child, a daughter, come from Zambia, then the house should devolve to her as the heir. This daughter, Mariam Matolla, born in 1928 at Dar es Salaam lived all the time in Limber Zambia. In order that this daughter could identify as such she had to produce a photograph taken together with a cow whose milk was used to feed her during her infancy as her mother died when she was an infant. F

The turn of events is that after the death of Selemani Matolla, the daughter did not turn up. This then gave the opportunity to the appellant to go to the Primary Court to seek an appointment as an administrator of the estate of the deceased and also to claim the right of inheritance as an heir, as he is the son of the brother of the G deceased. The appellant claimed to have nursed the deceased until his death on the 1st of January, 1981, and to have handled all the Islamic funeral rites. The Primary Court accepted the evidence adduced for the appellant as the son of the deceased's brother, and therefore entitled to inherit the estate of the deceased as heir under Islamic law. H

Under the law as stated in A Handbook of Mohamedan Law of Inheritance - by Sheik Ali Bin Hemedi El-Buhuri - a brother's son has a right to inheritance, and is included in the list of ten male heirs. The Primary I Court therefore found that the appellant had the right to inherit the deceased person's house, but that he will have to pay off the unpaid balance of the loan of that house to the National Housing Corporation.

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RUHUMBIKA J

Further to that, the same court directed that the said house should be valued and that the appellant should in that A respect pay one-third of that value to the mosque in relation to the "Wakf" set up by the deceased. Eventually, the house was valued at Shs.70,000/= by a Court Broker, and one-third the value of that stands at about shs. 23,330/=. B

The appellant has been trying to have the said house registered in his name, but could not succeed in doing that as the Primary Court required him to cash down Shs.23,330/= to the mosque as per said "Wakf".

The appellant being dissatisfied with this finding of the Primary Court appealed to the District Court (of Ilala as C the record shows). He was unsuccessful, as the District Court upheld the

decision of the Primary Court and dismissed the appeal. As a result of that, the appellant has appealed to the High Court. Although the appellant D tried to show in his memorandum of appeal (grounds nos. 2 and 4) that the objection was lodged after the expiration of the 90 days of the publication of the application so that any one with a claim of interest in the estate could lodge an objection with the courts this is not true. According to the record of the Primary Court which is very clear, the application proceedings were commenced on the 17th day of January, 1981, while the objection E was lodged on the 30th of January, 1981 by the Kadhi of the Mwinyimkuu Mosque one JAFFAR ABUBAKAR.

The crux of this appeal is: What was the intention of the deceased as reflected in the "Wakf"? The "Wakf" F established by the deceased was clearly a conditional "Wakf". One of the conditions was that the dedication (or endocument) of the house to the mosque should take effect after the death of the testator. Another condition was that the house should be inherited by the rightful heir. The house should only pass to the mosque permanently in the event of the heir failing to turn up. This means that the rights created by the "Wakf" as to the mosque could G not override or take precedence over those of the heir, when that heir turned up. It is then clear that the intention of the testator (deceased) was for the mosque to hold the house ad interim until the heir came forward.

It is obvious that the proposed heir was the daughter of the deceased (the term "heir" in legal literature is both H masculine and feminine, although the term "heiress" is used in general English usage). This heir, MARIAM MATOLLA, did not appear. No one knows whether she is still alive in Zambia or not. Nothing has been heard about her all this time. This has created an opportunity for the appellant to come forth as the righful heir to the I "estate of the deceased", and the Primary Court accepted him after due consideration of the application. The Primary Court decision in this respect was unanimous. Strictly speaking, the Primary Court could

have easily rejected the appellant as the heir, insisting that the only heir expected was the daughter of the A deceased. But in general, the Primary Court was also right in accepting the appellant as the heir, because he is the son of the deceased person's brother for which fact there was conclusive evidence. It appears that the decision of the Primary Court to accept the appellant has turned into a blessing to the appellant. MARIAM B MATOLLA, the daughter of the deceased, has not turned up, and the appellant is the only person available to benefit from the deceased's estate. This court did not wish to fault the decision of the Primary Court in accepting the appellant as the rightful heir according to Islamic Law, and the authority for that has already been cited. C

Going back to the "Wakf" is that the heir should inherit the house from the mosque, when such an heir came forth, despite whatever rights have been created by the "Wakf" as to the mosque. The appellant has now taken the D place of MARIAM MATOLLA. He has therefore the right to inherit the house, and the dedication of the house to the mosque in the "Wakf" is rendered non-effective thenceforth by the reason of the act of the appellant inheriting the house.

It is true that under the Mohamedan Law of Inheritance (book cited earlier), a testator cannot make a bequest in E which he passes more than one-third of the assets of the estate. Likewise a "Wakf" like the one set up by the deceased in this appeal could not give more than one-third of the value of the deceased person's estate, i.e., the house which is the only asset in the estate. That is why this theory of one-third was in the minds of the lower courts, when those courts obliged the appellant to cash down Shs. 23,330/= to the mosque in order to inherit the F house. This kind of interpretation of the "Wakf" in this appeal is a fallacy. Such an interpretation could only apply if the deceased has set up an unconditional "Wakf", dedicating the house to the mosque permanently after his death, without the clause that the house should pass to the heir when that heir was available. In such a case, if G then there came forward someone claiming as an heir under the usual Islamic Law of intestacy, the jurisprudence of the Islamic Law of intestacy would require that the dedication in the "Wakf" gave to the mosque rights in that particular house to one-third the value. In such a case, that type of heir could inherit the estate but less one-third the value of that estate dedicated to the mosque in a "Wakf", which the mosque should have. H

But in a conditional "Wakf" like the one set up by the deceased here, we clearly find that the mosque could not be entitled to one-third the value of the house left by the deceased, after the heir had come forth. This is so I because the intention of the testator was to pass on the house to the heir free of any conditions.

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This court therefore finds that it would not be justifiable for the mosque to claim to be indemnified to the tune of A Shs.23,330/= by the appellant in order to inherit the house of the deceased. As long as the appellant was accepted by the Primary Court as the rightful heir, he should be able to inherit that house free of any encumbrances created by the conditional "Wakf". B

Having found that, what follows now is to consider when the appellant will be able to inherit the house. Obviously, the appellant was essentially appointed the administrator of the estate of the deceased. Therefore, he C has to discharge the liabilities against the estate first before considering the distribution of the estate to the heirs (incidentally, there is only one heir in this matter, and that is the appellant himself).

Therefore, this does not mean that the appellant has to inherit the house straight away. The appellant is the D rightful heir alright, and there are no more qualms about that now. But the court notes from the record of the Primary Court that the house of the deceased was still entangled in a loan element with the National Housing Corporation, and as remarked earlier the appellant has to pay off the unpaid balance against that house in order to redeem it from the mortgage with the Corporation. In this respect, the appellant cannot transfer the title to the E house in his own name as he thinks. He has to settle the account with the National Housing Corporation before anything could be done.

This court therefore directs the appellant in his capacity as the administrator of the deceased's estate to procure F an up-to-date statement of account from the National Housing Corporation

in respect of the house, and file that statement in the Primary Court of Magomeni, which court should monitor and ensure to it that the appellant pays to the National Housing Corporation the required monthly loan repayments until the redemption amount is paid up. G
It is only after the redemption amount is paid fully that the house could be free from the mortgage regulations to enable the appellant to process and give effect to his inheritance rights, if there could be no other encumbrances in respect of that house. H
In the end result, this appeal succeeds only to the extent as indicated. The court makes no order as to costs.
Appeal allowed.
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A
[zRPz]RUGARABAMU ARCHARD MWOMBEKI v CHARLES KIZIGHA AND THREE OTHERS 1985 TLR 59 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mtenga J

CIVIL CASE 83 1979 B
Flynote
Torts - Defamation - Damages - Defendants published of the plaintiff false information without lawful justification or excuse - Plaintiff arrested, detained and interrogated - Plaintiff's business dwindled - General public shunned him - C Whether general damages awardable.
Torts - Damages - Assessment of - Assessors of unanimous view that Shs.470,400/= be awarded - Plaintiff's failure to produce books of accounts to prove what he actually earned before publication of the article - Plaintiff had D opportunity to mitigate the damage - Whether assessor's view correct.
-Headnote
The plaintiff claimed general damages in the sum of Shs.1 million for defamatory information published of him by E the defendants. The assessors were of the unanimous opinion that general damages in the sum of Shs.470,400/= be awarded. The plaintiff did not show to what extent his business suffered after the publication of the offending article in the Daily News newspaper, nor did he produce his books of accounts to substantiate his claim. F
Held: Since the plaintiff has not told the court how much he has been earning in his various businesses before and after the publication of the offending article, assessment of damages cannot be based on his unsubstantiated figures which appear to be exaggerated. G
Case Information
Plaintiff awarded Shs.200,000/=.
Case referred to:
1. East African Standard v Gitan [1970] E.A.678 H
Mbuya, for the plaintiffs

Banturaki, for the defendants

Judgment

Mtenga, J.: The plaintiff in this case is a businessman and he is suing the three defendants for damages for libel. I

The first defendant is employed by the second defendant. The second

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defendant is a registered company incorporated under Cap.212 of the laws of Tanzania, and he is the proprietor A of "The Daily News" which is a National Newspapers. The third defendant is a Limited liability Company incorporated under Cap.212 of the Laws of Tanzania and is the Publisher of the second defendant's Newspaper - "The Daily News".

The libel complained of was contained in an issue of the "Daily News" owned by the second defendant of 13th B day of August, 1976 and it was written by one Charles Kizigha the first defendant who was an employee of the second defendant and it was printed and published by the third defendant and it reads as follows: C

....Bank rejects Charcoal Export application.

By Charles Kizigha.

The Bank of Tanzania has rejected applications of Officials of an unregistered firm - Tanzania Charcoal Dealers - D who wanted foreign exchange to go to Iraq to negotiate Charcoal trade, it was learnt yesterday.

The Officials were named as Ndugu Rugarabamu Archard Mwombeki and Ndugu Mohamed.

The documents at the Bank of Tanzania revealed that the two people have been corresponding through the Iraq E Embassy in Dar es Salaam with charcoal dealers in Iraq.

They are reported to have assured Bank official that they had a lot of charcoal to export to Iraq, Bank sources said.

An official from the office of the Registrar of Companies said that "We have just received an application for F registering the firm and we are still considering it". The forms were submitted on AUGUST,9, this year and a receipt number N. 916141 was issued after a payment of Shs.45/= as fees was made.

The partners of the Tanzania Charcoal Dealers were Ndugu Tonny Wilson Sindano who stays in Upanga Road G at Plot Number 71 and Ndugu Rugarabamu Archard Mwombeki residing in Kinondoni Block Number 31 house Number 15 D, the forms indicated.

It was further indicated that the company would deal with charcoal and other related products. The offices of the H company are at Mosque/Libya Streets on Plot Number 1809/88.

The Principal Secretary in the Ministry of Trade, Ndugu A.G. Cheyo, said, "I have heard of the Company but the I Ministry has not yet been informed officially about its existence nor its nature of business."

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The innuendo averred by the plaintiff in paras 7 and 8 of the Plaint was: A

7. "(a) That the plaintiff was operating a firm that is not registered contrary to the laws of the country.

(b) That the plaintiff by operating a company that is not registered was committing an offence. B

(c) That the plaintiff by dealing with Iraq Embassy Officials showed that his dealings were suspicious and/or illegal.

(d) That the plaintiff managed to go through to the Bank of Tanzania without the knowledge of the Ministry of Trade C

(e) That the plaintiff was hoarding charcoal in the country.

8. or in the alternative, the said words meant and were understood to mean: D

(a) That the plaintiff was a Criminal.

(b) That the Plaintiff is a bogus unscrupulous and dishonest businessman.

(c) That the plaintiff was a saboteur of our economy by draining the country's foreign exchange for personal use or E advantage.

Furthermore, the plaintiff claims that in consequence thereof, he has been seriously injured in his character, credit and reputation in the way of his business, and he has been brought into public scandal, odium and contempt and F he has suffered damage.

On the other hand, the three defendants through the services of their advocate Mr. Bantulaki learned counsel from Tanzania Legal Corporation pleaded justification to the article quoted above. G

At the commencement of the trial, issues were agreed as follows:

1. Whether the defendants printed and published or caused to have printed and published the words complained of in para 5 of the plaint.

2. Whether the words complained of did bear or were capable of bearing any meaning defamatory of the plaintiff. H

3. Whether the words were true or false.

4. Whether the publication was priviledged or was a matter of fair comment.

5. Whether the publication referred to caused an injury or loss to his business or to his person. I

6. To what relief are the parties entitled.

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Mr. Rugarabamu (PW.1) in his sworn statement told the court that he is a businessman dealing with various A businesses such as selling charcoal, selling timber, preparing uniforms; clearing and forwarding goods; and preparing chicken feed for sale.

In his business for selling charcoal, he has a firm known as "Tanzania charcoal Dealers" and his partner in this B charcoal business is called Tonny W. Sindano. The firm is a registered one under the Companies Ordinance bearing Registration No. 39434 dated the 11th day of August, 1976 -Exhibit p.1. Before he started this C charcoal business, he requested the Ministry of Trade to look for him outside market vide his letter Exhibit p.2 dated the 15th day of May, 1976. The letter Exhibit p.2 was responded by the Ministry of Trade through its letter Exhibit p.3

dated the 27th day of May, 1976 which was addressed to the Director General of the D Government Purchasing Board Republic of Iraq and copied to the plaintiff. Later the Government of Iraq by way of telex message Exhibit p.4 corresponded with the plaintiff. The plaintiff then went to the Ministry of Trade with a request to be give an Export Licence but the Ministry of Trade referred him to the Forest Department for this was the department in a position of giving him an Export Licence in goods obtained from the forest. Forest E department referred him to TWICO., for TWICO was the sole company allowed by the Government to export Charcoal abroad and if they failed to export Charcoal abroad they should have given him a letter authorizing him to do so. TWICO referred the plaintiff to Tanzania Timber Export Company. Tanzania Timber Export F Company admitted before the plaintiff that they have failed to export charcoal but they advised the plaintiff to joint them in this business venture or else they were not ready to give him an export licence. The terms of their agreement were that Tanzania Timber Export Company was going to charge the plaintiff 10% of the charcoal he was going to export and that the charcoal is going to be exported through the name of Tanzania Timber Export G Company. The plaintiff was required to write a letter to Iraq informing them about this agreement and the plaintiff complied with this advice and he wrote a letter a copy of which was tendered in Court as Exhibit p.5 to the H Government of Iraq and he too remitted a copy of this letter to the Ambassador of Iraq based in Dar es Salaam. He also sent to Iraq a sample of his Charcoal and to prove this he produced Exhibit p.6 which is Air Way Bill No. 094 - 7145 -9452 of East African Airways dated the 26th day of June, 1976. He did not get a reply from Government of Iraq thus he went again to the Office of Tanzania Timber Export Company to inquire about the I same where he was told that the Government of Iraq had already entered into a contract to buy charcoal with the Government of Kenya and he was so informed by the General Manager of Tanzania

Timber Export Company who was recently in Nairobi Kenya. He then decided to go and see the Officials of A Bank of Tanzania with the view of negotiating for foreign currency so that he goes to Iraq to negotiate about the sale of charcoal to Iraq with the officials concerned there. Bank of Tanzania officials advised him to obtain first a B letter from Tanzania Timber Export Company before his request was considered. As he was going to the office of Tanzania Timber Export to obtain the letter as advised by the officials of Bank of Tanzania, he passed through the post office to collect his mails. There he found a letter exhibit p.8 dated the 20th July, 1976 C addressed to the plaintiff by the counsellor of Iraq Embassy here in Dar es Salaam. In the said letter Exhibit p.8 the said Counsellor advised the plaintiff that he should expedite about the arrangements of sale of charcoal to his Government purchasing Board in Iraq. The plaintiff took the letter Exhibit p.8 up to Tanzania Timber Export Company and showed it to the General Manager of that Company whereby the General Manager gave him a D letter Exhibit p.9 which he took to the Bank of Tanzania as advised. The Bank of Tanzania again advised him to go to the Ministry of Trade to get a letter of support and he got it and the same was tendered in court as Exhibit p.11. Later the plaintiff got a copy of a letter Exhibit p.12 addressed to the Governor of

the Bank of Tanzania by the Principal Secretary to the Ministry of Commerce and Industries and copied to the plaintiff advising the E Governor of the Bank of Tanzania not to give any clearance to the plaintiff to go to Iraq to negotiate about the deal of sale of charcoal with the Government purchasing Board of Iraq for the sole Company allowed to export charcoal from the country is Tanzania Timber Export Company. On receipt of the copy of the letter Exhibit F p.12, the plaintiff wrote a letter of protest to the Principal Secretary of the Ministry of Commerce and Industries but unfortunately he failed to produce a copy of that letter and copied that letter to the Governor of the Bank of Tanzania.

The General Manager of Tanzania Timber Export Company respondent to the letter of protest of the plaintiff by G writing a letter Exhibit p.13 to the Principal Secretary of the Ministry of Commerce and Industries and copied the same to the Governor of the Bank of Tanzania, the Principal Secretary to the Ministry of Natural Resources and the plaintiff. But before that the Bank of Tanzania refused to give clearance to the plaintiff to travel to Iraq to H negotiate about this deal resulting his letter of protest as stated above. Hereafter the Bank of Tanzania also responded to the plaintiff's letter of protest for on 27th August, 1976 the Director General of the Bank of Tanzania wrote a letter reference No. 1406 dated the 27th August, 1976 and tendered as Exhibit p. 14 to the I Principal Secretary, Ministry of Trade advising him to convene a meeting so that

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the business deal of selling charcoal to Iraq should take effect. As a result of this, a meeting on 13th August, A 1976 was held and the plaintiff was summoned to attend this meeting and indeed he at

tended it. Other members who attended this meeting were:

1 Mr. J.N. Mushi - The General Manager of Tanzania Timber Export Company; B

2. Mr. A.I. Mongi - one of the Managers from Tanzania Timber Export Company;

3. Mr. E.M. Mzara from the Ministry of Forest and Natural Resources; C

4. Mr. B.D.S. Scoor - an expert at Tanzania Timber Export Company;

5. Mr. E.S. Mbaga who represented the Principal Secretary to the Ministry of Trade.

D

In the said meeting, it was resolved that one member from Tanzania Timber Export Company and a representative from the plaintiff's firm should go to Baghdad in Iraq to negotiate about this charcoal business E deal. It was also agreed in this meeting that the plaintiff's firm should hand over charcoal to Tanzania Timber Export Company to sell it to Iraq on the Plaintiff's behalf and in return, Tanzania Timber Export Company should charge 10% of the money accrued from the sale. The minutes of the said meeting were tendered in court as exhibit p.15. F

To his surprise, on the 13/8/76 when the plaintiff was going to attend the above stated meeting a friend of his one Mr. Joel Ndyamu (PW.2) gave him a copy of the offending Daily News which he tendered as exhibit p.16 which is owned by the second defendant and published by the first defendant an employee of the second defendant and printed by the third defendant. G

The plaintiff claims that the story appearing in the said newspaper article was not true for he never requested for a licence from the Bank of Tanzania to sell out charcoal; therefore the heading of the article was not true, and that H by the 13th day of August, 1976 when this offending article came out, his firm had already been registered and it was registered on the 11th day of August, 1976 as exhibited in his certificate of registration exhibit p.1. He asserted as a lie that by 13/8/76 his firm was not registered as put in the article exhibit p.16. The plaintiff further I claims that the defendants showed the plaintiffs' residential and business addresses in the article exhibit p.16 so that police officers should arrest them for they were considered by the defendants to be criminal offenders. J

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The plaintiff further asserted that it is not true that the Ministry of Trade did not know about their charcoal A business as put in the article exhibit p.16 by the defendants for from May, 1976 his firm had been corresponding with the Ministry of Trade and held meetings with the officials of that Ministry as stated above. The plaintiff therefore claims to have been defamed. B As a result of this article exhibit p.16, officials from Anti-Corruption Squad on the 23/8/76 went to the office of the plaintiff along Moscow/Libya Street as advertised in the article exhibit p.16 and arrested the plaintiff and his C partner in business. These anti-corruption officials identified themselves as being Corneus Kafipa and he took him up to his office near Army Headquarters. In his room, Kafipa took out a copy of the Daily News of the 13/8/76 and enquired from the plaintiff to account as to how his firm would get money to bank up its charcoal business and as to whether his firm has other dubious dealings with the money requested from the bank of D Tanzania. He then gave the plaintiff a sheet of paper to write down his statement. However, the plaintiff refused to write down any statement, whereby Mr. Kafipa threatened to torture him; thereupon, the plaintiff admitted to write down his statement. The plaintiff's partner was interrogated by another police officer in a separate room. E Both of them were released on that very day at 6.30 p.m. after being warned that they should not leave Dar es Salaam City for any time they could be called upon.

Later sometime in September 1976 the plaintiff received a letter ref. No. 47543 dated the 11th September, 1976 from the Government purchasing Board of Iraq exhibit p. 17 which states in part and I quote: F

> We would like to inform that we had to put your offer of 17th of August in abeyance due to high price.

The plaintiff claims that he suspected the Iraq Embassy in Dar es Salaam to have sent a copy of the Daily News G of 13/8/76 exhibit p.16 to its Government in Iraq resulting his Charcoal business deal with Iraq Government to be revoked as shown in the letter exhibit p.17. The Plaintiff never went to see Tanzania Timber Export Company again for he is already thought by the Company as a crook and Tanzania Timber Export Company never sold H charcoal to Iraq as agreed upon for the Company depended upon the plaintiff's firm to get the said Charcoal.

The plaintiff further claims that in the first order Iraq Government wanted to buy 3,000 tons of charcoal from his firm that's to say about 60,000 bags of charcoal each weighting 50kgs. at a

price of Shs.55.02 per bag could I have been sold to Iraq Government had the agreement not been

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revoked by Iraq Government due to this article appearing in the Daily News exhibit p. 16 of 13/8/76. He claims A that he rang a person working with Iraq Embassy in Dar es Salaam and he got reminded by that person to read his home papers. The plaintiff further claims that if this business took of, his company could have earned a profit B of Shs.900,000/= net and this profit was lost due to the article which is defamatory written by the defendants.

Later the plaintiff approached the second defendant to correct his errors appearing in the article of 13/8/76 Daily News exhibit p.16 and to offer an apology and the second defendant promised to do so on 16/8/76 but he never C kept his promise. On 21st August, 1976 through the services of their advocate one Mr. Raithatha, the plaintiffs wrote the Daily News second defendant a letter exhibit p.18 asking him to offer an apology and to pay the plaintiff a reasonable sum by way of damages. On 23rd August, 1976 the second defendant wrote a letter D Ref. No. ED/CEN/55 to the plaintiffs through their advocate Exhibit p.19 and part of this letter reads and I quote:

...While we are making out own investigations on the matter we would like to have from you a sample letter which could be the basis for discussion on a possible apology. E

On receipt of this letter Exhibit p.19, the plaintiff through the services of his other advocate one Mr. Rahim on F 22nd December, 1977 wrote the second defendant another letter Exhibit p.20 demanding for an apology, while reminding him of his previous letter Exhibit p.18. On receipt of this letter Exhibit p.20 the second defendant wrote a letter Exhibit p.21 bearing Reference No. p BS/AM/119/12/77 dated the 27 the December, 1977 to the Chief Corporation Counsel seeking for legal advice on the matter. The plaintiff claims that up to the time he came G to court the defendants have never apologized nor have they given him any reasonable compensation for their defamatory article appearing in the article of the Daily News of 13th August, 1976 Exhibit p.16.

The plaintiff further contended that prior to that article Exhibit p.16 the second defendant also published some H other articles which were defamatory about Charcoal business and he tendered such articles as Exhibits p.22 p.24 respectively.

In conclusion, the plaintiff testified that he is a businessman dealing with other businesses apart from dealing with I the sale of charcoal he is dealing with the sale of wood; tailoring of uniforms; Clearing and forwarding goods; Manufacturing chicken feed and animals; and he used to get an annual net profit of::

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1. Tailoring Sh.200,000/= up to 300,000/=' A
2. Timber Shs.300,000/= to Shs.400,000/=
3. Clearing and Forwarding of goods Shs.600,000/=

He claims to have had a lot of customers prior to the publication of the offensive article Exhibit p.16 but B thereafter, he no longer gets such a great number of customers and when he appears in his favourite bar known as "White House Bar" to drink along Libya Street here in Dar es Salaam his friends and customers ridiculed and laughed at him calling him all sorts of names and he was stopped selling charcoal because some of his customers consider him to be a criminal offender. He asks now this court to award him Shs.1 million as damages for this C defamation plus costs of this suit.

Mr. Joel Ndyamkama (PW.2) testified that he is a friend of the plaintiff and that he is a sales Manager of Colt Motors. Sometime in August, 1976 he bought a copy of the Daily News and to his surprise he saw an offensive article defaming the plaintiff and he took that copy of the Daily News Exhibit p.16 to the plaintiff and from then D on he considered the plaintiff to be a crook who ran a business without registering it, and he looked down upon him. By then the plaintiff had already applied to the Colt Motors to buy two cars for the purpose of running his E Charcoal business but when the Managing Director of Colt Motors saw the article appearing on Exhibit p. 16, he cancelled the application because he considered the plaintiff to be a crook.

On the other hand, the defendants admitted to have published the article Exhibit p.16 but they pleaded justification and they called two witnesses in their support and these were Mr. Enest Ambali (DW.1) and Richard F Benjamini Mnguhai (DW.2).

During the hearing of this case the court sat with three assessors as provided under section 57(1) of the Newspaper Act, 1976 but during final submissions it was reported that one of the assessors was dead and this situation left the court with only two assessors. G

I directed the two gentlemen assessors that in a libel action, the plaintiff has to prove three things. Firstly he has to prove whether the defendants published those words complained of; secondly, did the words refer to the H plaintiff? and lastly, were the words complained of, defamatory. The test of what is defamatory is whether the words complained of would tend to lower the reputation of the plaintiff in the opinion of right-thinking persons.

On the first issue as to whether the defendant printed and published those words complained of in paragraph 5 of I the plaint? Well the defendants do not deny that and their defence counsel through his submissions readily admitted to have done so. Further still, the plaintiff

managed to produce the article in issue Exhibit p.16. A

The second and third issues can be answered together. As rightly contended by Mr. Mbuya, learned counsel for the plaintiff, which contention I wholly agree with, defamation is a false and malicious statement about a man to B his discredit. Whether or not a statement is defamatory, the court has to look at the contents of the statement to see as to whether it is true or false and malicious or whether it discredits the one about whom it relates. Having this in mind, two facts are not true on the Daily News issue Ex.p.16 The heading of the article says: "... Bank C rejects Charcoal export application." This is not all that true for the evidence as stated above clearly shows that the plaintiff requested for travel clearance to go to Iraq where the prospective customer was and he never applied for an export Licence as the heading of that article Exhibit

p.16 wants the public to understand. Surely D and right thinking person on reading the heading of that article on Exhibit p.16 would come to the conclusion that the business deal between the plaintiff and Iraq Government for selling the latter charcoal was finished for without having an export Licence, the plaintiff could not be in a position of selling charcoal to Iraq Embassy who are based here in Dar es Salaam and who took part in this deal by negotiating on behalf of their Government were E embarrassed.

The next item which I consider to be false is contained in paragraph one of the article in Exhibit p.16 and it read: "... The Bank of Tanzania has rejected applications of two officials of an unregistered firm....." This I think was as well bad news for Iraq Government together with the officials of Iraq Embassy in Dar es Salaam naturally F believed through this article Exhibit p.16 that they were negotiating with, an unregistered firm and it was as well bad news to right thinking people at large for the public thought that the plaintiff was a crook who wanted to have business with foreign Government without having a registered firm. The defendants agreed that they printed and G published the article but asserted that was true and pleaded justification to it. To support their assertion, they brought the Registrar of Companies Mr. Richard Benjamini Mnguhai DW.2) who told the Court that the plaintiff's company was registered on 16th August, 1976 three days after the article Exh.p.16 complained of was printed and published. This is not at all true for the plaintiff's certificate of registration Exhibit p.1 clearly shows H that the plaintiff's Company was registered on 11th August, 1976 before the publication of Exhibit p.16.

Another false statement in the article Exhibit p.16. is contained in the last paragraph of it and it reads:

...The Principal Secretary in the Ministry of Trade, Ndugu A.G. Cheyo, said, I have heard of the Company but the Ministry I has not

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yet been informed officially about its existence nor its nature of business. A

I say that this statement is false because right from the start as I explained above in the evidence of the plaintiff (PW.1) that the plaintiff has approached the Ministry of Trade to enquire about the possibility of exporting B charcoal abroad for sale. As a result of the plaintiff's inquiries, the Ministry of Trade has written a letter Exhibit p.3 to Iraq Government reminding it about its trade delegation of 1973 looking for wood charcoal and the C Ministry of Trade had asked the Iraq Government to contact the plaintiff directly and copied that letter to the plaintiff and indeed, the Ministry of Trade had requested the plaintiffs firm to get into contract with TWICO and TAN TIMBER which the plaintiff's firm did. After long correspondence between the plaintiff and Iraq D Government the plaintiff sent a sample of his charcoal to Iraq Government as shown in the Air Way Bill Exhibit p.6 and as a result, of this, the Iraq Government purchasing Board wrote back to the plaintiff wishing to buy an initial of 3,000 tons of charcoal. It is therefore not true that the Ministry of Trade was not officially aware of the existence of the plaintiff's firm.

The next issue is whether the words used in the article Exhibit p.16 were defamatory of the plaintiff. To this Mr. E Mbuya learned counsel for the plaintiff referred me to the case of East

African Standard v Gittan [1970] E.A. 678 where it was held by Spry Ag. J. as he then was that the test of what is defamatory is whether the words complained of would tend to lower the reputation of the plaintiff in the opinion of right-thinking persons; F and one could look at the general impression they are likely to create in the minds of reasonable persons. In the instant case of article Exhibit p.16 has carried, an innuendo that there was an illegal firm in the sense that it was not registered and that this unregistered firm was carrying on business without complying with the requirements of the law resulting the Bank of Tanzania to react by refusing to grant it export licence for exporting charcoal G abroad. There is evidence on recording by the plaintiff (PW.1) and his witness (PW.2) that after publication of this article exhibit p.16 which evidence was not disputed that the plaintiff (PW.1) and his partner were arrested and interrogated in connection with this charcoal business as exhibited in the article Exhibit p.16. Moreover the H plaintiff's application to buy two motor vehicles from Colt Motors for his charcoal business as stated by his friend (PW.2), was also revoked as a result of the publication of this article Exhibit p.16. Later PW.2 went to the plaintiff and enquired from him as to whether what he had read in the article Exhibit p.16 was true and when the I plaintiff went to drink in one of the bars he normally used to frequent the "White House Bar," he was

looked down upon as a crook by his customers and friends. I agree with Mr. Mbuya's contention that by then A the Daily News was the only substantial media in the country with a wide circulation and among the people who read it were the people of Iraq Embassy in Dar es Salaam whom the plaintiff with the knowledge of the Ministry B of Trade was contacting with Iraq Government trying to sell charcoal in Iraq.

In conclusion therefore, I agree with the unanimous opinion of the two gentlemen assessors that the article exhibit p. 16 was recklessly prepared on incorrect information and the publication of this article appearing in exhibit p.16 C has injured the reputation of the plaintiff and it has exposed him to hatred, contempt and it has damaged him in his business profession. The defendants acted in this manner without lawful justification or excuse and the information was false.

I now come to consider the fifth and sixth issues and these two issues can be consolidated together for they are inter-related. With that I directed the two gentlemen assessors to consider the following: D

(a) Gravity of the defamation,

(b) Whether the libelous imputation was conveyed to the general mass of readers of the Daily News, E

(c) Regard should be taken on the defendants' refusal to publish an apology.

The two gentlemen assessors were of the unanimous opinion that the plaintiff should be awarded Shs.470,400/= as general damages. F

It is true that the innuendo appearing on Exhibit p.16 was disparaging to the plaintiff's character and the article imputed the commission of a crime by the plaintiff and that is why he was arrested, and detained for interrogation by the anti-corruption officials for a number of hours.

As a result of the libel plaintiff's business has dwindled as G the general public has shunned away from him. For they look down upon him as a crook after reading that article. Even though I look at this claim with a bit of scepticism for it is likely that the plaintiff might have exaggerated this claim out of feelings of indignation. Indeed the plaintiff's business contact with Iraq Government H had come to an abrupt end due to the publication of this libellous article Exhibit p.16 but also due to high price as complained by the Iraq Government in their letter Exhibit p.17. Also take into view that the Daily News had a wide circulation for it is read not only in the whole country but also in neighbouring countries. More and above, I the second defendant's conduct after publication of the libel aggravated the matter. The second defendant did not respond to letters sent to him by the plaintiff's advocates nor did he offer an apology. I agree that in these

circumstances the plaintiff is entitled to substantial damages bearing in mind that the plaintiff's means of livelihood A has seriously been threatened.

I am not however, in agreement with the opinion of the gentlemen assessors that the amount of damages be in the region of Shs.470,400/=. The plaintiff tried to bring in some figures in order to convince the court as to how B much he used to earn before the publication of this offending article but he never told the court as to how much he is now earning in his various businesses after the publication of this article and nor did he produce his books of accounts to prove what actually he earned in his various businesses before the publication of this offensive article C Exhibit p.16 and this being the position, the plaintiff might have exaggerated out of feelings of indignation and the figures of profits of his businesses might not be all that accurate. It should also be borne in mind that the business contract with the Iraq Government was not at all concluded and the plaintiff had all the opportunity to mitigate the damage by selling his charcoal locally.

It is therefore my view that the interests of justice will be served if the plaintiff is awarded Shs.200,000/= as D general damages plus costs and interest. It is so ordered.

Plaintiff is awarded Shs.200,000/=

F

[zRPz]SALUM SHABANI v REPUBLIC 1985 TLR 71 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mtenga J

7 June, 1982
CRIMINAL APPEAL 49 OF 1982
Flynote
Criminal Practice and Procedure - Sentencing - Legislature has given option of fine or imprisonment - What the court G should do.

-Headnote

The appellant was charged with and convicted of an offence whose penalty provision gave an option of a fine or imprisonment. The trial magistrate sentenced him to three months imprisonment without the fine option. He appealed against such sentence. H

Held: Where the Legislature has given an option of a fine or imprisonment, the court, when imposing a sentence, must ascertain that a sentence of fine should first be imposed and in default of payment of such fine, then a sentence of imprisonment can be given. I

1985 TLr p72

MTENGA J

Case Information

Appeal allowed. A

Cases referred to:

1. Mohamed Juma v Rex, 1 T.L.R. 257
2. Nyakulima d/o Chacha v R. 1 T.L.R. 341 B
3. R. v Bison s/o Mwanga, 11 T.L.R.
4. Samwel Mwendamane v R. [1967] HCD n. 457
5. R. v Juma Mrisho [1969] HCD. n. 61

Judgment

Mtenga, J.: The appellant Salum s/o Shabani was convicted on his own unequivocal plea of C guilty to one count under the Traffic Act, 1973 that is to say, using a motor vehicle on the public road with the load greater than the load capacity declared by the manufacturers of its chassis contrary to sections 39(2) (3) and D (5) of the Road Traffic Act, No.30 of 1973. He was sentenced to three months jail. He is now appealing against such sentence.

In his memorandum of appeal the appellant complains that he was not given an option of a sentence of fine.

The facts of the case disclosed that the appellant was a bus conductor of "Super Star Bus Service" which E operates from Dar es Salaam to Morogoro and on the date in question, he was arrested carrying more passengers than the bus is licensed to carry in that he carried 35 passengers in excess. The relevant sub-section under which the appellant was charged reads: F

(2) No motor vehicle or trailer shall be used on a road with a load greater than the load capacity declared by the manufacturers of the chassis of the motor vehicle or trailer or greater than the load capacity determine under the provisions of this Act. G

At first glance, I had the opinion that "load" as provided in the above stated subsection of the Act does not include "a passenger" because a passenger as defined in "The Concise Oxford Dictionary" is a person travelling in public conveyance by land or water or air. However, this problem appears to be solved by subsection 4 of section 39 of the Traffic Act. This relevant sub-section provides: H

For the purposes of subsections (2) and (3) of this section, persons travelling on a motor vehicle or trailer shall be deemed to be part of the load. IA

Accordingly, the charge has properly been laid against the appellant.

1985 TLR p73
MTENGA J
As I stated above the appellant is complaining against the sentence in that he was not given an option of a A sentence of fine. The penalty subsection under which the appellant was charged provides:

(5) Any person who uses on a road a motor vehicle or trailer in contravention of the provisions of subsections (1) (2) B or (3) shall be guilty of an offence and shall be liable, on first conviction to a fine not exceeding twenty thousand shillings and on a second conviction, to a fine not exceeding thirty thousand shillings and on a third or subsequent conviction, to a fine not exceeding fifty thousand shillings or, in each case, to a term of imprisonment not exceeding three years or to both such fine and such imprisonment. C

I understand that the task of sentencing is a very difficult one though admittedly, it is a discretionary task. A magistrate or judge who decides what sentence to impose against a convicted person has to exercise that D discretion judicially. There are a number of factors that the court has to consider before passing a sentence such as gravity of the offence, prevalence of the offence, the interest of society, the penalty section under which the accused is charged and last but not least, the record of the accused person. E

In the instant case, the relevant penalty subsection has provided for a fine or imprisonment as a penalty for carrying a load greater than the load capacity declared by the manufacturers of the chassis of the motor vehicle. This is an option given by the Legislature, which therefore means that in imposing a sentence, the court must F ascertain that a sentence of fine should first be imposed and in default of payment of such fine, then a sentence of imprisonment can be given. I hasten to add here that in imposing a sentence of fine the court must ascertain that the fine can be paid rather than impose a fine which cannot be paid and as a result the accused goes to jail. In Mohamed Juma v Rex. 1 T.L.R. 257, Wilson J. held: G

That though severe sentences may be justifiable for certain offences under liquor laws, the fines imposed in such cases should bear a reasonable relation to the accused's power to pay taking all his circumstances into account and should not be such as to render illusory the option of a fine specifically granted by the Legislature in the case of a first conviction H under the liquor laws.

In another case, Nyakulima d/o Chacha v R. 1 T.L.R. 341 Mohan, J. observed: I

The principle is that a fine should be one which an accused person can reasonably be expected to pay.

1985 TLR p74
MTENGA J
Mohan, J. also observed in R. v Bison s/o Mwanga 11 T.L.R. that before imposing a fine the court should A make some enquiries of the financial standing of the accused and the result of this should form part of the record.

In the case of Samwel Mwendamane v R. [1967] H.C.D. n. 457 Saidi, J. as he then was expressed the view B that an accused person should not be fined more than one third of his monthly income and I entirely agree with him.

In the instant case, as I stated above, the appellant was not given his right of option of a sentence of fine as C stipulated by legislature in the subsection of the Act quoted above. This in my view is wrong and I hold that the trial magistrate did not exercise his discretion judicially in sentencing the appellant. Even the learned State Attorney for the Republic one Mrs. Shiyo did not support the sentence imposed against the appellant and she D referred me to a case of R. v. Juma Mrisho [1969] H.C.D. no. 61. In that case Bramble J. as he then was held:

Where the legislature has given an alternative of a fine for certain minor offences it would seem more appropriate to inflict this type of punishment rather than peremptory imprisonment. Of course, where there is a continuous flagrant disregard for the law, imprisonment would be the only answer. E

In the instant case, the appellant is a first offender and in his mitigation, he told the lower court that the passengers F in excess were stranded and he helped them without charging them any fare. We all know that nowadays there is a shortage of transport facilities and I believe the appellant acted through sympathy by carrying more passengers than he was permitted to carry and under the circumstances a sentence of fine could be appropriate.

Accordingly this appeal against the sentence is allowed and I set aside the sentence imposed against the appellant G and since the appellant has been in jail from 10th May, 1982 up to date - a period of almost one month, I feel that this period of imprisonment he has already served is sufficient for the offence committed and no useful purpose will be served by substituting a sentence of fine. As a result, I order his immediate release from custody unless he is held there for any other lawful cause.

Appeal allowed.

1985 TLR p75

A

[zRPz]REPUBLIC v CHEKA ANTHONY 1985 TLR 75 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Bahati J

18 May 1984

CRIMINAL CASE 32 OF 1982 B

Flynote

Criminal Law - Murder - Deceased killed in the course of a fight - Not easy to establish malice afore thought - Manslaughter.

-Headnote

The accused killed the deceased in the course of a fight. No conclusive evidence could be established that the accused had formed the intent to kill the deceased because things happened fast. C

Held: When death occurs as a result of a fight, unless there are exceptional circumstances, persons who cause death are guilty of manslaughter and not murder. D

Case Information

Guilty of manslaughter

Cases referred to:

1. R v John Wimaana [1968] H.C.D. n. 49 E

Kyaruzi, for the prosecution.

C. Rutagatina, for the defence.

Judgment

Bahati, J.: Cheka Anthony the accused in this case is charged with the offence of murder F contrary to section 196 of the Penal Code in that on or about 14th August, 1979 at Kongowe village he murdered one Rashid Salum.

The case for the Prosecution is that Rashid Salum the deceased in this case was living at Kongowe with Maimuna G Salahe, PW.4 and Juma Rashidi, PW.5 The deceased was not married to Maimuna but he lived with her as man and wife. Then on the fateful day of 14th August, 1979 the accused who also lived in Kongowe village and who once had Maimuna as his woman friend came to the house of Maimuna while the deceased and Juma his H son had gone to the shops to buy a lamp. It was at night. When the deceased came back he found the accused talking to Maimuna. Then a fight ensued and the accused beat and kicked the deceased and eventually he beat the deceased on the head using a stick (gongo). Then the deceased was left lying in a ditch dead and the I accused went to his home which was just next to where the deceased lived with Maimuna and Juma.

1985 TLR p76

BAHATI J

Juma Rashid ran to Albert Kivamba PW.2 who was known to Juma. Juma told Albert that his father was dead A and that he had been killed by Cheka. Albert went to his neighbour one Francis Magai with Juma to tell him what Juma had reported. Then the three of them went to Selemani Omari the cell leader, PW.1. Eventually they B all came to the house of the deceased. They knocked at the door of the house of the deceased to wake up Maimuna. When Maimuna opened the door, they asked her where her husband was. She replied that she had left him outside sleeping. Maimuna then came out with a lamp and she saw the deceased lying in a ditch. C Maimuna called out, "Rashid, get up, let us go to sleep inside." But Rashid the deceased was dead and did not wake up. From there the group went to the house of Cheka and woke him up. Cheka was very nervous and they arrested him. They took both Cheka and Maimuna to Chang'ombe Police Station. The Police at D Chang'ombe then visited the scene of crime. Police Superintendent Alfred Gewe, PW.3 went to the scene of crime with the people who had taken Cheka to the Police Station. At the scene of crime Maimuna told Superintendent Gewe that Cheka had killed the deceased. Superintendent Gewe found the body of the deceased lying in a ditch near the house of the deceased. Near the body was a piece of wood which was used E to kill the deceased (exhibit P.1). Also Superintendent Gewe drew a sketch plan of the area (exhibit P.2). Superintendent Gewe was told by Maimuna that the deceased used to be her husband. After she left him she got another man, the accused.

Maimuna's version of the case was that she lived with the deceased in Kongowe for 3 years and then the F deceased left her. By then Maimuna had built her own house in the plot of the deceased. The deceased rented a house when he left Maimuna and he was living there. On 14th August, 1979 the deceased came to Maimuna's house and said "hodi". Maimuna remained silent as she was with Cheka Anthony in the house. Cheka Antony G opened the door and came out and fought with the deceased. Then Maimuna ran out of the house and went to hide in the bush. Eventually Maimuna came back and slept in her house. Soon afterwards a cell leader and many people came there and asked her where her husband the deceased was. She told them that she did not know as he had his own home. Then she came out and they told her that her husband was dead. She was then H taken to the Police station.

The report of the doctor on the post mortem examination of the deceased was tendered as an exhibit in terms of section 275 of the Criminal Procedure Code because the doctor could not be found. The post mortem examination report (exhibit P.3) shows that cause of death was due to head injury - contusion. The summary of the report reads as follows: I

cut wound on occipital region 3 x 5 x 7 cm. extending have big mydrocelc - Big subdural haematoma found - brain A laceration at base of skull.

In defence the accused gave a sworn statement. He said that he used to live at Kongowe before he was B arrested. On 14th August, 1979 he was at Kongowe. Maimuna was his girl friend for almost a year and then accused left her and she got the deceased as her man. On 14th August, 1979 Maimuna called the accused to her house. Accused went there and Maimuna told him that she wanted him again. Then the deceased came C there and there was a fight. The deceased strangled the accused and the accused struggled to set himself free and in the process he pushed the deceased who fell down. The accused left for his home running. People came to arrest him at night.

In cross-examination the accused said that the deceased could not have fallen in the ditch when he pushed him as D the ditch was at the back of the house. He also said that the deceased died due to a beating and that he beat him. But the accused went on to claim again that he simply pushed him. At another stage in cross-examination the accused seemed to admit that he did the killing jointly with Maimuna. He then changed his story to say that he E simply pushed the deceased.

After summing up to the assessors, both assessors found the accused guilty of murder. The assessors found PW.5 to be possessed of sufficient intelligence and to be a witness of truth despite his tender years. The F assessors found that the deceased must have been beaten by the accused and possibly by Maimuna also jointly with the accused.

This is a tragic death no doubt. The evidence clearly shows that the accused beat the deceased till he died. The post mortem examination report findings are more consistent with the deceased being beaten than just being G pushed. There is clear evidence from PW.5 Juma Rashid who witnessed the fight. Juma narrated how he saw his father being beaten and kicked by the accused and eventually the accused hit him with a piece of wood. Juma does not mention

Maimuna to have been involved in the fight. I, like the gentleman assessors, do find Juma H to be a witness of truth. Although Juma was unable to understand the meaning of an oath he certainly knew the duty to tell the truth. I am satisfied that he is possessed of sufficient intelligence to know the duty to tell the truth and that what he said was the truth. The claim by the accused that Juma was asleep cannot be true because it is Juma who reported the death of his father to the cell leader and other people. If Juma had been asleep I during

the fight he could not have reported anything. As I have said above, the post mortem examination report A corroborates to a great extent what Juma said in court. The accused himself has admitted having a scuffle with deceased. He however puts it that he simply pushed the deceased away. But there is the evidence of Juma that B the accused actually assaulted the deceased till he died and there is the post mortem examination report showing that there was heavy beating of the deceased rather than a mere simple fall. In view of this I find that the accused fought with the deceased and beat the deceased till he died.

We cannot vouch for the identity of the stick or piece of wood which was used to beat the deceased. There is C no way in which it can be shown that exhibit P.1 was the stick or piece of wood which was used to kill the deceased. But this is not a necessary factor here, for what is important here is that the deceased was severely D assaulted on his head leading to head injury and contusion, brain laceration at the base of the skull and a big subdural haematoma. These injuries could not have been self inflicted nor could they be inflicted by mere hands. The accused must have used some blunt weapon like a stick to cause these injuries and I so find. Whether exhibit p.1 was used or not is therefore not important. E

Having found that the accused assaulted the deceased causing his death, what are the possible defences for the accused in this case? The only defence which accused has suggested in this case against his act is that of self F defence. I will therefore examine whether self defence is available here. It will be recalled that the accused himself admitted that the woman Maimuna was living with the deceased to the accused's knowledge, after leaving the accused. The evidence of Juma also shows that Maimuna was living with the deceased when this incident happened. Although Maimuna has claimed otherwise, I am satisfied that the position is as presented by the G accused and Juma. Now the accused went to talk to a woman of another person at night in the absence of the person who was living with the woman, namely, the deceased. When he was surprised he fought the deceased until he killed him. The accused did not attempt even to run away until he had finished off the deceased. The H accused certainly had an opportunity to run away and in any case he was at fault to come to the home of the deceased to talk with deceased's woman at night. The fight took place outside the house and the accused had every opportunity to run away to avoid further confrontation with the deceased. I am satisfied that the defence of I self defence in terms of section 18 to 18 C of Penal Code is not available to the accused here. What other possible defence is there for the accused? Here was a fight. Everything done was done in the course of a struggle where there was hardly any time for the

1985 TLr p79
accused to form the intent to kill. I would agree with the defence counsel that the case of R. v John Wimaana A [1968] H.C.D. 49 is applicable here. In Wimaana's case there was a fight and in the course of the fight the deceased was killed. Mustafa, J, as he then was said thus: "when death occurs as a result of a fight as in this B case, unless there are very exceptional circumstances, persons who cause death are guilty of manslaughter and not murder. In this case the offence disclosed is on the borderline... and I will give the benefit of the doubt to the accused persons and find them guilty of Manslaughter."
To summarize the position here, I have found the accused as the person who fought and killed the deceased C possibly with a stick. I have also considered the danger of acting on the evidence of a child of tender years and I have warned myself of the danger of doing so but I am satisfied the child is telling the truth. Moreover the evidence of the child (PW.5) had been corroborated to an extent by that of PW.4, the post mortem examination D report and even the sworn statement of the accused himself. The death occurred in the course of a fight and as such it is not easy to find malice aforethought as was held in Wimaana's case cited above. I therefore differ from the views of assessors who find accused guilty of murder. Consequently I find accused guilty of manslaughter contrary to section 195 of the Penal Code and I convict him accordingly. E
Guilty of manslaughter
1985 TLR p79
G
[zRPz]ALLY KAUZENI v REPUBLIC 1985 TLR 79 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mapigano J

17 January, 1983
CRIMINAL APPEAL 71 OF 1982
Flynote
Criminal Law - Criminal trespass - Building a house on a plot not belonging to the builder by mistake - Whether can amount to criminal trespass. H
-Headnote
The appellant was charged with and convicted of criminal trespass because he entered and started to build a dwelling house on a plot which he was duly, but by mistake, allocated. The plot was previously allocated to I another person who, however, was not in physical possession of it.
1985 TLR p80
MAPIGANO J

Held: (i) Where the complainant was, as in the present case, not in actual physical possession of the property A no offence of criminal trespass under section 299 (a) of the Penal Code can be committed against him;

(ii) the offence of criminal trespass is committed where the trespass is in order to the commission of an offence, or when it is to intimidate, to insult or to annoy. B

Case Information

Appeal allowed

Case referred to: C

1. Kigorogolo v Rueshereka [1969] E.A. 426

Judgment

Mapigano J.: In this case the appellant Ally Kauzeni was charged with criminal trespass contrary to section 299 (a) of the Penal Code. He was convicted and sentenced to a fine of Shs. 500/= and to D be jailed if he would not pay. He was aggrieved by the conviction and he lodged an appeal against it. The appeal was heard on the 7th inst. and the court then quashed the conviction and stated that the reasons for the decision will be rendered in writing later.

In my assessment I was of the view that the trial court did not go to the heart of the matter and that its judgment E was flawed by a number of non-directions that were grave in nature. And it did not surprise me that Mr. Uronu for the Republic felt a civil trespass had been committed and not a criminal trespass and that redress if any lay in a civil action rather than criminal charge. F

The appellant was accused of unlawfully entering upon the property of Omari Mbega at Msamvu area in the Morogoro township with intent to intimidate, insult or annoy, the incident taking place on the 29th September, 1979. As indicated at the outset, the charge was laid under paragraph (a) of section 299 of the Penal Code. For ease of reference that paragraph is set out in full hereunder, viz: G

Any person who unlawfully enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property is guilty of the misdemeanour termed "Criminal H trespass" and is liable to imprisonment for three months: if the property upon which the offence is committed is any building, tent or vessel used as a human dwelling or any building used as a place of worship or as a place for the custody of property the offender is liable to imprisonment for one year. I

1985 TLR p81

MAPIGANO J

In the instant case the property upon which the alleged criminal trespass was perpetrated by the appellant was a A piece of undeveloped land and the mens rea which the charge sought to attribute to the appellant was to intimated or insult or annoy the said Omari Mbega.

The background and facts of this case, largely undisputed, are these. Up to 1979 Omari Mbega, the appellant B and other people used to live at a place called Mwigole in the township of Morogoro. It happened that the Town Council resolved to build a road through the area which would have necessitated the pulling down of several houses in that area. Pursuantly, the Town Council served notices to Omari Mbega, the appellant and C others, requiring them to move

from the place to create room for the construction of the projected road. At the same time the Town Council offered each one of them an alternative plot at Msamvu. Omari Mbega was duly offered a plot in that area identifiable as No.36 B, and the appellant was also offered one. However, not the whole Msamvu area was suitably habitable. The plot offered to the appellant turned out to be situated at a D marsh. Finding himself in such quandary, the appellant approached the Town Director through the local Party leaders. A few days later the appellant was seen entering upon plot No. 36 B, which had been allocated to Omari Mbega, and starting to building a dwelling - house on it. That was before Omari Mbega had done E anything to the plot. All the same, Omari Mbega protested and lodged a complaint to the authorities, resulting into the appellant being brought to the lower court on the charge.

The appellant made an explanation as to why he entered upon the plot. He said that when it was put in the mind F of the Town Director that the plot granted to the appellant was on a bog, the said Director instructed one Nyoni, a surveyor, to offer the appellant another one. Nyoni, the appellant told the court, proceeded to re-allocate him plot No. 36 B. Neither the Town Director nor the surveyor was called to give evidence, but the G story of the appellant found some support in the testimony of two Party functionaries, namely Daudi Mganga (DW 2) and Malungo Choka (DW 3), and no reasonable man could say for sure that they were lying.

In his judgment the learned magistrate found, reasonably, that the plot was the holding of Omari Mbega. He also H found, reasonably, that the appellant's entry upon it was wrongful, adding that it was or would have been grossly irregular for the Town Director or any body under him to allocate the plot to the appellant. The substantive part of the appeal is the criticism that the learned magistrate paid no or little attention to the fact that the entry upon the property was the result of a genuine mistake.

As I have remarked above, the judgment of the lower court was flawed by a number of serious non-directions. I In the first place, the learned

magistrate never paused to consider the issue of possession. As pointed out already, the holder of the plot in A question had not started developing it at the time the appellant entered upon it and it seems that he was then still residing at Mwagole area. The question, therefore, is whether criminal trespass could be committed against a B person who was not in actual physical possession of the property. In my view, an intention to intimidate, insult or annoy any person in possession of property does not, in the context of the penal provision whereunder the appellant was charged, mean to intimidate, insult or annoy any person in constructive or in juridical possession C but in actual physical possession. Where, therefore, the complainant was, as in the present case, not in actual physical possession of the property no offence of criminal trespass under section 299(a) could be committed against him. In holding so I find countenance and comfort in India. In that country, where the law is exactly the D same, the weight of authority is in favour of the view that no criminal trespass can be committed upon a person who is not actually possessed of the property. And nearer home, there is a persuasive decision in Kigorogolo v Rueshereka,[1969] E.A 426, by the High Court of Uganda construing an identical

penal provision. If that opinion holds, then that should per se have been sufficient ground for dismissing the charge. E

But there was another ground aside from that, equally strong, and this brings me to the second non-direction which is in relation with the issue of mens rea. The question that arose in this case is what was the appellant's frame of mind at the material time. Now it is self-evident that the section whereunder the appellant was charged and convicted has two essentials: F

(1) Unlawful entry into or upon property in the possession of an other (actus reus),

(2) Such entry must be with intent G

(i) to commit an offence (which was not the allegation), or

(ii) to intimidate, insult or annoy the person in possession of the property (this was the mens rea alleged in the charge in this case). H

Of course the words intimidate, insult and annoy must be understood in their ordinary senses. To intimidate means to overawe, to put in fear, by show of force or threats or violence; to insult is to assail with scornful abuse or to treat with offensive disrespect; and to annoy is to irritate, to molest, to harass or to disturb the reasonable peace of mind. I

It was necessary here for the learned magistrate to address his mind on this question of intent. He was obliged to consider whether the

unlawful entry was calculated on the appellant's mind to intimidate, insult or annoy. Unfortunately this point did A not engage his attention at all. Ratanal and Thakore on The Law of Crimes 14th edition go into this matter of intention at quite great length. At pages 1083 - 1084 they have this to say: B

"The word" "intent" is not to be taken as identical with "wish" or "desire". The intention constitutes the entry criminal. Merely to trespass is not ordinarily such an offence; but when the trespass is in order to the commission of an offence, or when it is to intimidate, to insult, or to annoy, it is punished. Thus, the essence of the offence is the intent in committing C the trespass. It is essential for the prosecution to prove the intention laid down in the section. The intention must always be gathered from the circumstances of the case, and one matter which has to be considered is the consequences which naturally flow from the act, because a man is usually presumed to intend the consequences of his D own act. That, however, is only one element from which the court has to discover the intention of the party who trespasses. Was the real intention to annoy, or was the real intention something else and the annoyance a mere consequence, possibly foreseen, but not intended or desired? If it is the latter, there is no offence under the section... A E conviction could not follow merely because one could pronounce with certainty that the accused must have known that his act would, as one of the inevitable incidents, cause annoyance. Criminal trespass depends on the intention of the F offender and not upon the nature of the act. It is one thing to entertain a certain intention and another to have the knowledge that one's act may possibly lead to a certain result. The section is so worded as to show that the act must be done with intent and does not, as other sections do, embrace the case of an act done with knowledge of the likelihood of G a given consequence.

Although a trespasser knows that his act, if discovered, will be likely to cause annoyance, it does not always follow that he does the act with that intent....
The corroborated evidence of the appellant stood unrebutted. There was nothing to refute his story that he had H been re-allocated the plot by Nyoni. The learned magistrate remarked that it was wrong for Nyoni to do so. I am disposed to agree with him and I would be charitably inclined to the view that Nyoni did so inadvertently or under a misapprehension. But there was no positive evidence to establish that the appellant's entry upon the land I was accompanied by an intention to intimidate, insult or
1985 TLR p84
annoy. The facts, in my opinion, operated to take the case out of the scope of section 299 (a) of the Penal A Code. There was hardly any vestige of doubt that the appellant had been given to believe, and he honestly and reasonable believed, albeit mistakenly, that he had been granted the title to the land. And it appears that his entry B upon it was solely in the exercise of the bonafide claim of that supposed right. The law visits not the honest error, but the malice of mankind. I am sure that if the learned magistrate had applied his mind to the ingredients of the offence he would have come to a different conclusion. He would have held that there was no mens rea necessary to bring home the offence of criminal trespass. He would, therefore, have acquitted the appellant. C
The aforegoing were my reasons for quashing the conviction. I would like to make it quite clear, though, that nothing herein should be construed as finally deciding the right to the plot in question.
Appeal allowed. D
1985 TLR p84
E
[zRPz]REPUBLIC v YONA KAPONDA AND 9 OTHERS 1985 TLR 84 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Makame JA

April 27, 1985
MISCELLANEOUS ECONOMIC CRIMINAL APPLICATION 2 OF 1985 F
Flynote
Criminal Practice and Procedure - Appeals - Appeal out of time - Application for appeal out of time - Applicant's affidavit showing no reasons - Whether proper - Tanzania Court of Appeal Rules, 1979. G
Criminal Practice and Procedure - Appeal out of time - Issue of fundamental importance to be argued on the intended appeal - Whether appeal should be admitted for hearing - Economic and Organized Crime Control Act, 1984. H
-Headnote

The respondents in this application were to answer charges of offence under the Economic and Organized Crime Control Act, 1984. They applied to the High Court for bail and their applications were granted. At least 30 I days after the date of the ruling of the High Court, the Republic filed notices of appeal and then filed affidavits in support of "Applications
1985 TLR p85
MAKAME JA
for Leave to Appeal out of Time". But the affidavits contained no reasons to explain the delay in filing the A notices of appeal.
Held: (i) Notices of appeal ought to be filed within 14 days of the High Court ruling: Rule 61 of the Tanzania Court of Appeal Rules, 1979; as the notices here were brought out of time, they ought to have been preceded by B appropriate applications to appeal out of time, supported by affidavits setting out good reasons for the delays; an affidavit which contains no reasons, as the affidavits in this application, is improper;

(ii) in deciding whether or not to allow an application to appeal out of time, the court has to consider C whether or not there is "sufficient reasons" not only for the delay, but also "sufficient reasons" for extending the time during which to entertain the appeal.
Judgment
Makame, J.A.: In this Ruling I shall deal with two applications together. They are Misc. D Economic Criminal Application No.1/85 involving the respondent Ally Haji Ahamed, and Application No.2/85, with Yona Kaponda and nine other persons as the respondents. In both applications the Republic is the applicant and the background facts are essentially the same. In both applications Mr. Saffari, Senior State Attorney, appeared for the Applicant Republic, while Mr. Bateyunga, learned advocate, represented the E respondents.
The eleven respondents in these two applications were alleged to have committed offence against the Economic and Organized Crime Control Act, 1984. F
Mtenga, J., granted them bail when they applied to him and, except in the case of Ally Haji Ahamed, the Republic did not object to the applications.
The Ruling in Ahamed's case was made on 19th December, 1984, and on 26th January, 1985 Mr. Teemba, Senior State Attorney, purported to file a Notice of Appeal. On the same day, he swore an affidavit in support G of and "Application for Leave to Appeal Out of Time".
There were eight rulings involving the other ten applicants and these were delivered on various dates, between 19th and 31st December, 1984. On 30th January, 1985 Mr. Teemba purported to file a Notice of Appeal and on the following day he swore an affidavit in support of an 'Application for Leave to Appeal out of Time". H
In terms of Rule 61 of the Tanzania Court of Appeal Rules, 1979, the Republic ought to have filed a Notice of Appeal within fourteen days of each ruling by Mtenga, J., granting bail. The Republic did not do so, and before I they can be allowed to file the Notices out of time they ought to make appropriate application setting out good reasons for the delays.
1985 TLR p86
MAKAME JA

Mr. Teemba did not set out any reasons, let alone good ones. His 'Application' in Ahamed's case is set out fully A to facilitate illustration.

"Application for Leave to Appeal Out of Time.

A f f i d a v i t B

I, AGGREY ARTHUR MRINGI TEEMBA, Senior State Attorney,

P.O. Box 970, Mbeya, do solemnly swear and state of follow: C

1. That on the 19th day of December, 1984 the Honourable Mr. Justice Mtenga, sitting in the High Court, as an Economic Crimes Court, allowed an Application for bail under section 35(1) of the Economic and Organised Crime Control Act, 1984. D

2. That as he sat alone without the two lay members as provided for in law the Court was not properly and lawfully constituted.

3. That this issue raises a point of law of great public importance. E

WHEREFORE, the Appellant prays that he be allowed to fill his appeal notwithstanding the lapse of time. Dated at Mbeya this 26th day of JANUARY, 1985.

With respect, such an empty application is not only not serious, it sounds discourteous to the court. F

Mr. Saffari conceded that Mr. Teemba assigned no reasons for the delay, and he himself was not able to advance any. He merely said that the delay was only a short one and not unreasonable. Quite obviously, G whether or not a delay is unreasonable is only one of the factors to be taken into account; but the delay has to be explained first. Mr. Bateyunga has objected to the applications and he pointed out the omission I have referred to.

In deciding whether or not to extend time I have to consider whether or not there is 'sufficient reasons'. As I H understand it, 'Sufficient reasons' here does not refer only, and is not confined, to the delay. Rather, it is 'sufficient reason' for extending time, and for this I have to take into account also the decision intended to be appealed against, the surrounding circumstances, and the weight and implications of the issue or issues involved. I The respondents here were released on bail, after applying for the same, presumably after being given the mandatory advice in accordance with Section 29 (4) of Act 13 of 1984. They were advised

to petition the High Court, which is probably not the same as an Economic Crimes Court. The particular 'High A Court' referred to under Sections 3 and 4 is meant to hear and determine cases, and Mtenga, J. felt that that did not include questions of bail. An application for bail after a person is charged is to the Court, which I suppose refers to the Economic Crimes Court, in which a High Court judge must sit with two lay members. B Under section 16, decisions are by majority, which implies the presence of the lay members, but arguably that does not dispose of Mtenga, J.'s problem: According to Mtenga, J.'s argument, bail would be excluded because "All questions" under section it refers only to all those questions to be decided by the Court, and bail is not one of them. C

There are thus obviously conflicting views. The reality however, is that there are these eleven people, and probably a lot more, who are out on bail and who the Republic contends ought not

to have been released on bail. D These people ought to know whether or not they are legally out. Those in remand custody, and these would, I think, be several, ought to know for sure where they should go to seek bail, if they want to. If it is correct that lay members must be involved, and if Mr. Bateyunga is right that to-date no lay members have been appointed, it must mean that the system is impotent - no bail can be granted at the moment; so the authorities under Section 5 E of the Act should be moved into action. All this would depend on resolving the issue to be raised in the intended appeal.

In view of all the foregoing, what is involved here is certainly a matter of great public importance, and it is proper that the Court of Appeal should decide this grave matter. The situation is a novel one and the novelty might have F contributed to Mr. Teemba's delay. Notwithstanding the Republic's failure to advance reasons, I find sufficient reason for extending time within which the Republic may file Notices in these two applications. Appropriate Notices to appeal must be filed by Friday 10th May, 1985 and then the matter should be followed up accordingly. The application is accordingly allowed. G

Application allowed

1985 TLR p88

A

[zRPz]NATIONAL AGRICULTURAL AND FOOD CORPORATION v MULBADAW VILLAGE COUNCIL AND OTHERS 1985 TLR 88 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Mustafa JJA, Makame JJA.

21 June 1985

CIVIL APPEAL 3 OF 1985 B

Flynote

Land Law - Customary title - Right over land under native law and custom - Person claiming such right must prove he is a native.

Land Law - Village Councils - Whether land possessed by villages automatically vested in village councils after their establishment. C

Land Law - Licensees - Trespass over licensees' rights - Damages awardable.

-Headnote

The respondents filed a suit in the High Court against the appellant claiming general and special damages for D trespass by the appellant over the respondent's lands and destruction of their crops and huts. The High Court gave judgment in favour of the respondents.

On appeal the appellants argued that the respondents had not established that they occupied the lands either E under customary or by grant under the Villages and Ujamaa Villages Act, 1975. The respondent Village Council though duly registered and incorporated could not show that the land was allocated to it by the District Development Council as required by direction 5 of the Directions under the Villages and Ujamaa Villages Act, F 1975. As for the individual

villagers, these failed to prove that they were natives within the meaning of the law. Moreover most of the claimant villagers did not testify in court believing a few selected villagers could represent them. It was argued that the claims of each villager was distinct and had to be testified by the villager concerned.

In favour of the villagers it was argued that, if they had no right to possess the land, they, at least, were licensees G of the appellants and that the appellant's action of destroying the respondents' property amounted to trespass.

Held: (i) None of the villagers who had testified could be said to have held land on customary tenure, as none H had established, or even averred that he was a native;

(ii) the Mulbadaw Village Council did not own any land because there was no evidence of any allocation of land to it by the District Development Council; I

(iii) the fact that the village council succeeded the previous unincorporated village in its administrative function over a specified area

confers no title of any type over such land on the village council; A

(iv) since the villagers were cultivating and planting with permission of the appellant's land they were in possession lawfully, as licensees, they can claim damages in trespass for the destruction of their property by the appellant.

Case Information

Appeal allowed. B

No case referred to.

Judgment

Mustafa, J.A.: The respondents were plaintiffs in a High Court action. The first plaintiff, C Mulbadaw Village Council and another 66 villagers all of the same area, in the Basotu Ward, Hanang District, had filed a case in the High Court against the National Agricultural and Food Corporation (hereafter called Nafco) claiming general and special damages for trespass by Nafco over the plaintiffs' lands and destruction of D plaintiffs' crops and huts. The High Court (D'Souza, Ag. J.) awarded the 1st plaintiff Shs.250,000 as general damages and all the other plaintiffs a global sum of Shs.1,300,000 as general damages and a sum of Shs.545,600 as special damages to all the villagers. The Judge also made a declaration that the area of 8125 acres in dispute E belongs to the plaintiffs as claimed and ordered Nafco to cease its trespass forthwith. From that judgment Nafco has appealed to this court.

The Village Council claimed to be the "lawful owner" of 200 acres of arable land under cultivation and 6095 acres of pasture land. The village council in the plaint alleged that it was allocated the land by the "local F authorities' in 1976 and had since then been in possession.

The other villagers alleged in the plaint that they individually had separate farms allocated to them by "local authorities" in 1964 and that all the separate farms together measured 1830 acres of arable land.

Nafco in its defence claimed that it was in lawful occupation of the disputed land and denied the claim of the G village council and the other villagers and denied committing any trespass or acts of damage.

Since the litigants on both sides have claimed lawful possession or ownership over the same land, we will have to examine the evidence adduced in court to discover whose claim has more priority or is more superior. We will H say at once that the evidence adduced was somewhat confused and vague.

The village council was registered under the Villages and Ujamaa Villages (Registration, Designation and I Administration) Act 1975 on 24.3.1977 and incorporated on 30/12/1977. So the council existed as a legal entity as from 1977. There was evidence that before the village

council was registered there was a Mulbadaw village, administering and with jurisdiction over an area of land A which the village council claimed. On this point the judge stated inter alia:

> The defendant has argued that as the village was not registered until 1976 it could not hold land in 1975. I accept the B evidence of P.W.1 Frederick Tluway. The effect of this evidence is that before the village was incorporated Mulbadaw village was an administrative unit. When it was incorporated it was in possession and control of all land within the former C administrative unit. It is inconceivable that a village was registered and incorporated without any land in its possession and control .... I am satisfied that the village council were in lawful possession and control of the land in question.

The Judge had in effect held that the fact of registration and incorporation automatically vests the village council D with land. We do not think such a quantum leap is justified. The previous village as a community might or might not have had ownership or possession of the land within its administrative unit. The land in the village might have E belonged individually to the villagers living in the village or the village might have had some land in its own capacity as a community. We have no evidence. But an administrative unit does not necessarily imply that the land within its administrative jurisdiction is land belonging to it. At least no such evidence had been adduced, nor F indeed was such a claim made. The fact that the village council succeeded the previous unincorporated village in its administrative function over a specified area confers no title of any type over such land on the village council. The village council could acquire land only by allocation to it by the District Development Council. We refer to direction 5 of the Directions under the Villages and Ujamaa Villages (Registration, Designation and G Administration) Act, 1975 as published in Government Notice No. 168 on 22.8.75. It reads:

> 5(1) Land for the use of a village shall comprise such areas of land as may be reserved for the purpose and allocated to the village by the District Development Council. H

There was no evidence of any allocation of land to this village council by the District Development Council at any stage. On the evidence adduced in court we can find nothing which can sustain the claim by the village council I that it was the owner or was in possession of 200 acres of arable land and 6095 acres of pasture land from 1977 onwards. Prior to

that of course the village council was not in existence and could not have owned or possessed land. A
We now deal with the other 66 villagers. Only 5 villagers testified as to their own claims, i.e. P.W.2, P.W. 3, P.W.5, P.W.6 and P.W.7. Two witnesses P.W.1 and P.W.4 also testified, but the evidence of these two B witnesses was irrelevant to the individual villagers' claim. The other claimants did not give evidence in court at all. They had, in writing, authorised those villagers who had testified to represent them and act in their behalf. That was in order. P.W.3 in the course of giving his evidence, produced a document Exh. p6, being minutes of a C public meeting held by Mulbadaw village on 6.1.81 with a list containing the name of villagers with their acreage of land and crops grown thereon which Nafco had allegedly destroyed and for which Nafco was sued in trespass.
It was alleged by P.W.3 that a committee had gone round and interviewed the villagers and recorded the damage D done. Primarily on the basis of this Exhibit p6, because no cross-examination was directed to it in the course of P.W.3's testimony, the trial judge held that the:

> 2nd to 67th plaintiff were in occupation of 1830 acres of arable land in Mulbadaw village before Nafco started operations E in the area under the administrative jurisdiction of Mulbadaw village council. The village council recognised that their occupation was lawful and they had been in occupation for a considerable time before Nafco decided to expand. They had customary tenancies or what are called deemed right of occupancy ... This court finds that the rights of the peasants F and this village council could not be extinguished except by operation of law....

The Judge had obviously held that all the 66 villagers held customary tenancies over their plots. We fail to see how the contents of Ex.p6 (which incidentally listed only 64 names) could be evidence of the respective rights of G those who had not testified. There is no evidence as to when each villager had occupied or was in possession of the land, and this list was compiled in the absence of Nafco. In any event each villager had to prove his own case. Each claim is different from the other, in terms of date of possession, of acreage, of the method of H acquisition, and so on. They were individual claims. A person may act and represent another person, but we know of no law or legal enactment which can permit a person to testify in place of another. All that P.W.3 could say was that he was told by certain claimants as to the facts of their claims, and what was said was listed I accordingly. That is pure hearsay, and direct or incontestable documentary evidence is required to sustain a

land claim. The content of the minutes of that meeting does not prove itself, and is outside the scope of Part V of A the Evidence Act.
Here each villager had a separate and distinct claim, though the claims were based on similar acts of trespass. This is not one of those representative suits by or for a club, where different conditions apply. It is indeed B surprising that a number of plaintiffs failed to testify in court.

Their cases never got off the ground. We are satisfied that the claims of those villagers who had not testified must fail.

We will now deal with those villagers who had testified. The Judge found that they had customary tenancies or what are called deemed rights of occupancy. C

In this connection we refer to the Land Ordinance, Cap. 113 of the Laws. An occupier is defined;

Occupier means the holder of a right of occupancy and includes a native or a native authority using or occupying land in D accordance with native law and custom.

The trial Judge obviously was of the view that the villagers were claiming as natives, and therefore as holders of rights of occupancy. "Native" is defined in the same Ordinance as: E

Native means any native of Africa not being of European or Asiatic origin or descent and includes a Swahili but not a Somali. F

P.W.2, P.W.5, P.W.6 and P.W.7 did not aver or testify that they were natives. It is for a plaintiff to establish that he was a native before a court can hold that he was holding land on a customary tenancy. These 4 villagers had not established that they were in occupation on the basis of customary tenancies. G

P.W.3 testified that he was of Somali descent, and was therefore in law not a native before 1970, and could not hold a customary tenancy.

By an amending Act to the Land Ordinance, Act No. 28 of 1970, native was amended as follows: H

A native means any person who is a citizen of the United Republic and who is not of European or Asiatic Origin or descent.

It will be seen that none of the villagers who had testified could be said to have held land on customary tenure, as I none had established, or even averred, that he was a native. They were thus not "occupiers" in terms of the Land Ordinance.

1985 TLR p93

NYALALI CJ, MUSTAFA JJA, MAKAME JJA

According to the evidence of D.W.2, a Land Officer, about 26,000 acres of land in the Basotu Ward, which A land included the area in dispute between the litigants, was occupied by the Kilimo Dept. from 1968-1969. He testified that Nafco succeeded to the land occupied by Kilimo and entered into occupation of it in 1969, the area B being reduced to 22790 acres. In fact Nafco was offered a Right of Occupancy over the said 22790 acres in January, 1973 for 99 years. Nafco wanted 2 separate grants, in two different names, and the issue of the Right of Occupancy was thereby delayed until l981. But Nafco had occupied the land in dispute from 1969 onwards, although no wheat was planted until 1979. C

From the evidence of D.W. 2, the clear inference is that the land, inclusive of the disputed area, was in 1968 provisionally allocated to Kilimo and then to its successor Nafco pending the finalisation of the formalities of the issue of a Right of Occupancy. The offer of a Right of Occupancy in 1973 to Nafco bears this out. The Judge ignored the evidence of D.W.2 completely. D

According to D.W.3, a witness who did not impress the Judge, the area, including the land in dispute, was in 1968 fenced in by Kilimo, and villagers had entered the land by breaking the fence, necessitating the need to call in the Field Force to quell such riotous behaviour. The Judge did not refer to this part of D.W.3's evidence. E

In our view, the evidence of D.W.2 and D.W.3 would tend to show that Nafco had been in occupation of the disputed land since 1969. We also think that prior to 1969, none of the villagers who had testified had established that they had customary tenancies over their land, even if we accept that they were in physical F possession of or were using the land. The villagers who had testified could perhaps have been licensees, but they were not occupiers in terms of the Land Ordinance. We will now deal with each villager who had testified.

P.W.2 stated that he had lived at Mulbadaw for many years and was given a shamba after 1961. He did not say G when he was given the shamba, but it must have been around 1961. His house was destroyed by a Nafco tractor as well as his 4 acres of growing maize and beans. His hut cost Shs. 500 and he expected 15 bags of maize and 21/2 bags of beans per acre. Each bag of maize was valued at Shs.100, and each bag of beans at 275/=. His claim would be Shs.9,250/=. H

P.W.3 stated that he was a Somali, and that his father had the land since 1964 and he himself farmed the land from 1972. He had planted 50 acres of hybrid maize which was destroyed by Nafco. An acre of maize could yield on an average 5 bags of maize, each bag valued at shs.100/=. His claim would be 25,000/=. I

P.W.5 alleged that he had been on the land a long time ago when it

was virgin land. He had 30 acres of hybrid maize intercropped with beans. He did not A give any figures. Presumably the figure would be 5 bags per acre of maize and each bag worth shs.100/=. His hut was also burnt. His loss would be 15,500/=.

P.W.6 stated that his father obtained the land in 1964 and he himself took over in 1975. B He had planted 5 acres of maize. He had 3 houses, which he estimated at Shs.26,000/=. He gave no figures for bags per acre or cost of a bag of maize. Presumably the figure would be 5 bags per acre and shs.100/= per bag of maize. His claim would be shs.28,500/

P.W.7 alleged that he had lived in the area for 25 years. Ten bags of stored maize and 7 C bags of stored beans were burnt. 51/2 acres of growing maize and 4 acres of beans were destroyed. He estimated 15 bags of maize and 4 bags of beans per acre. His hut was burnt. He estimated the cost of 1 bag of maize at 100/= and one of beans at at 275/=. His claim would be shs.15,575/=.

Both P.W.1 and P.W.4 did not claim any loss in their own right. D

As we have pointed out the evidence adduced was rather vague and imprecise. We will assume that the destruction and damage was done in or about 1979.

We will now refer to the evidence of D.W.9. This witness was the Katibu Kata of E Basotu Ward since 1977, which included the area in dispute. He testified that the villagers used to apply through him to Nafco to cultivate and plant on land in the disputed area every year. He had been granting permission on behalf of Nafco to such villagers. However he stated that for the 1980/81 season Nafco had refused permission to the villagers to cultivate and plant on Nafco

land. Although the Judge found that D.W.9 was F unreliable, he was referring to the evidence of D.W.9 concerning the exercise in removing and evicting the villagers from the area in dispute. The Judge did not refer to or consider the evidence of D.W.9 about the granting of the yearly permission to cultivate and plant. G

We think that D.W. 9's evidence on this point is credible. If that were so, it is clear that the villagers were cultivating and planting with permission on Nafco land, until 1980. As such they were in possession lawfully, as licensees, and they can claim damages in trespass for their crops and huts destroyed in 1979. H

In our view of the evidence the Judge rightly found, despite Nafco's denial, that Nafco was responsible for the destruction and burning of huts and crops as alleged by the villagers who had testified.

In brief in our view the village council had failed to establish that it was in occupation of I or owned land since its registration and incorporation in 1977. The villagers who had not testified had failed to establish their

claims as there was no evidence adduced in court in support. Those who did testify, i.e. A P.W.2, P.W.3 P.W.5, P.W.6 and P.W.7 had failed to establish that they originally had customary tenancies in that they had failed to prove that they were natives within the meaning of the word in the Land Ordinance. Nafco had been in occupation of the land in question, since 1969, as successors to Kilimo. After 1969, the villagers only B cultivated and planted with the leave and permission of Nafco, until Nafco refused permission in 1980.

If the villagers who had testified could have established that as natives they had rights of occupancy by virtue of customary tenancies then the view of the Judge that such villagers in this case could only be evicted or dispossessed under the provisions of the Land C Acquisition Act, No.47 of 1967 is sound.

In view of the conclusions we have reached, we have to decide if the villagers who had testified are entitled to any damages. We are of opinion that P.W.2, P.W.3, P.W.5, P.W.6, and P.W.7 would be entitled to claim for the loss they had suffered, as a result D of Nafco's action. They had cultivated and planted under licence from Nafco and were in physical possession at the material time and an action in trespass would lie. Since there was no challenge to their evidence in respect of the damage alleged, we are prepared to accept the figures and estimates they have submitted: E

P.W.2 would be entitled to a sum of shs. 9,250/=
P.W.3 would be entitled to a sum of shs.25,000/=
P.W.4 would be entitled to a sum of shs.15,500/=
P.W.6 would be entitled to a sum of shs.28,500/= F
P.W.7 would be entitled to a sum of shs.15,575/=

Their claims for general damages have not been made out. Their licences expired when their applications to cultivate and plant was refused by Nafco in 1980, and they had no G right or

interest of any kind in the disputed land after their 1979 planting.

The claims of all the other plaintiffs fail.

We allow the appeal, set aside the judgment and order of the High Court, and substitute H therefore an order dismissing the claims of the plaintiffs except those plaintiffs listed below. The appellant will pay the successful plaintiff/respondents below named the sums set against their respective names:

P.W.2 Welwel Amsi the sum of Shs. 9,250/= I

1985 TLR p96

P.W.3 Mohamed Abdi Guledi the sum of Shs.25,000/= A

P.W.5 Ami Habiye the sum of Shs.15,500/=

P.W.6 Uysufu F.G. Ally the sum of Shs.28,500/=

P.W.7 Bangi Laida the sum of Shs.15,575/=

These sums bear interest at 9% p.a from the date of the filing of the suit to date of B payment.

In the circumstances we make no order for costs, both here and below.

The appellant will be at liberty to apply for the refund of the money it had deposited in C court, subject to the deduction of the sums payable to the respondents as above stated.

Appeal allowed.

1985 LTR p96

D

[zRPz]REPUBLIC v SULEIMAN SALEH ALI 1985 TLR 96 (HC)

Court High Court of Zanzibar - Zanzibar

Judge Ramadhani CJ

May 24, 1985

CRIMINAL REVISION 21 OF 1985 E

Flynote

Criminal Practice and Procedure - Charges - Withdrawal of - Withdrawal after the accused has been called upon to make his defence - Effect of withdrawal - Criminal Procedure Decree, Cap.14, s.81. F

Criminal Practice and Procedure - Charges - Withdrawal of - Duty of prosecutors to give reasons for seeking to withdraw charges - Criminal Procedure Decree, Cap 14, s.81.

-Headnote

The accused appeared before a magistrate's court charged with receiving by false G pretences c/s 275 of the Penal Decree, Cap.13. The prosecution, having called four witnesses, closed its case. Subsequently, the accused gave evidence, on oath, in his defence and then the court adjourned to allow for his witnesses to come and give further H evidence. Despite several more adjournments the said witnesses never appeared and the court never came to hear them. Then suddenly, the prosecutor applied for withdrawal of the charge under s.81(a) of the Criminal

Procedure Decree, Cap. 14, and I the magistrate readily granted the application. The High Court considered this on revision.

1985 TLR p97

RAMADHANI CJ

Held: (i) Withdrawal of charges may be made under paragraph (a) of s.81 of the A Criminal Procedure Decree, Cap 14, only if the accused person has not been called upon to make his defence; if the accused has already been called upon to make his defence, the withdrawal is done under paragraph (b) of the section, and the consequence of the withdrawal is acquittal; as the accused in this case had already made his defence, the appropriate provision for withdrawing the charge was s.81(b) and not B s.81(a) of the Decree;

(ii) withdrawal of charges unders .81 of the Criminal Procedure Decree, Cap.14, can be done in two ways. One is by the Attorney - General withdrawing a charge or instructing that it be withdrawn, and the other is by the prosecutor applying to C court for consent to withdraw the case; those two ways are not one and the same;

(iii) the Attorney-General is the only public prosecutor with the privileged position whereby he can withdraw charges without assigning any reasons and the courts D must readily comply with his move; no other prosecutor enjoys that privilege;

(iv) any public prosecutor, other than the Attorney-General wishing to withdraw a case must give reasons for his intention, to do so and must seek the consent of the court and, accordingly, the court must record those reasons and make a decision, with its reasons, to accord or to withhold consent; E

(v) the practice of public prosecutors withdrawing charges without assigning reasons and courts according consent as a mere formality, as happened in this case, is improper and should cease. F

Case Information

Order accordingly.

Cases referred to:

1. R. v Jiwan Nathu and Another, [1944]11 E.A.C.A. 62.
2. The Queen v The Comptroller-General of Patents, G Designs and Trade Marks, [1899] 1 Q.B. 909
3. Mwangi Macharia v R, [1959] E.A. 955
4. Re: Sadayan, 5 Mad. L.T. 216
5. Umesh Chunder Roy v Satish Chudra Roy and Others, 22 C.W.N. 69. H
6. Rajani Kanta Sheha v Idris Thakur, 48 C. 1105

Judgment

Ramadhani, C.J.: The accused, Suleiman Saleh Ali, was charged with one count of receiving by false pretences contrary to section 275 of the Penal Decree, Cap 13. It was alleged that he had received an electric iron worth Shs.200/=. The I accused denied this

1985 TLR p98

RAMADHANI CJ

charge. The prosecution adduced four witnesses and closed its case. The accused A defended himself on oath. He said that he had witnesses but on the day that was fixed for hearing them, they never turned up. So the accused requested the court to summon them for him. The next time the case was to continue the accused himself was absent. The public prosecutor applied for an arrest warrant. The case was adjourned again B three more times but the accused was still at large. On the fourth time the accused had been found. The prosecutor then requested the court to remand the accused. That was 15th April, 1985. Then on the 27th April, when the case was to proceed the Prosecutor C withdrew the charge under section 81(a) of the Criminal Procedure Decree, Cap 14. The Magistrate granted the request.

Section 81 permits a prosecutor with the consent of the court or on the instructions of the Attorney-General, at any time before judgment is pronounced [to] withdraw from the prosecution of any person; D

If the prosecutor does so before the accused person is called upon to make his defence, the withdrawal is under paragraph (a) where upon the accused is discharged but can be re-charged. But if the accused has already been called upon to make his defence the withdrawal is under paragraph (b) and the accused is acquitted: R. v Jiwan Nathu & Another (1944) 11 E.A.C.A. A62 I will deal with this case later on. E

In the present case the accused had already made his defence on oath. The court was awaiting his witnesses only. Therefore the appropriate paragraph was (b) and not (a) as was requested for and granted by the magistrate. F

Apart from the foregoing discrepancy I feel there is a need to talk on this section 81. There are two ways by which a prosecutor may withdraw a case. The prosecutor may have instructions from the Attorney-General to withdraw a case. In such a situation the court has no discretion but to discharge the case: The Queen v The G Comptroller-General of Patents, Designs and Trade Marks [1899] 1 Q.B. 909, at 194. Alternatively the prosecutor might have the consent of the court to withdraw a case. In this case before me, the second method has been used.

My observation is that the courts have been treating these two alternatives as one and H the same. Without any instructions from the Attorney-General, a prosecutor will be allowed to withdraw a case. But as in the second alternative where the consent of the court is required then the court has to satisfy itself of the appropriateness of the application before granting it. Even in the case of The Queen v The I Comptroller-General, the learned judge has said at page 914:

1985 TLR p99

RAMADHANI CJ

I do not say that when a case is before a judge a prosecutor may not ask the judge to allow the A case to be withdrawn, and the judge may do so if he is satisfied that there is no case... (emphasis is mine.)

It is obvious from the above quoted passage that the court is duty bound to hear the B reasons of the prosecutor for the application to withdraw. When the court is satisfied as to the reasons, only then would it grant its consent. It is essential that there be a record of the reasons and the

decision of the court instead of merely recording the application and without any reasons at all recording the consent. C

I have not been able to find out any cases of Zanzibar on this point. Likewise my efforts to obtain East African cases bore no fruits. I have seen only two East African cases which have been reported. The first one was that of R. v Jiwan Nathu & Another already cited. But that case dealt with the issue of which paragraph of section 87 of the D Criminal Procedure Code of Kenya, which is in pari materia with our section 81, was used and so whether the accused could be charged again or not. The second one is of Mwangi Macharia v R. (1959) E.A. 955 which again is not on the issue before me. Therefore I have to resort to Indian cases. E

There are two conflicting decisions that have been made by the Indian courts. First In re Sadayan 5 Mad. L.T. 216 it was decided that it is not necessary that a magistrate gives his reasons for granting his consent. Unfortunately these reports are not in the Library therefore I have not been able to read the proceedings for myself. But in another case of F Umesh Chunder Roy v Satish Chundra Roy & Others 22 C.W.N. 69 the High Court of India differed from that decision and the learned judges said at page 71:

> The only prosecutor who may under the provision of the Code of Criminal Procedure withdraw G from a prosecution without giving reasons is the Advocate-General. No other Public Prosecutor is placed in that privileged position; and if the consent of the Court is to be regarded as a ministerial act or merely an executive act we do not understand why it should have been necessary for the legislature to insert such a provision in the section of the Code H with which we are now dealing. It is clear to our clear minds that in either withholding consent or in according consent the Court is acting in a judicial capacity, and for its order as for every order judicially made it ought to give and record its reasons. I

1985 TLR p100

This decision was followed in the case of Rajani Kanta Sheha v Idris Thakur 48 C. A 1105.

I am in agreement with their lordships. It is absolutely necessary that a Public Prosecutor gives reasons for his application to withdraw and it is the duty of the Court to record the same and to give its decision with its reasons. B

There was a need to follow the above prescribed procedure in the present case. The accused was remanded for twelve days and then the Prosecutor applied for the withdrawal of the case. Admittedly the accused person himself was at fault for not making an appearance. But there was no new discovery made and the Public C Prosecutor could have made the application immediately after the accused person had made his defence on the 8th September, 1984 or even on the 12th September when the witnesses of the accused did not turn up and when the case was adjourned to the 20th September when accused person himself became absent.

It is my hope that the present habit of the Public Prosecutor standing up and making an D application for withdrawing a case under section 81 without giving any reasons at all and for the Court according consent without discussing and being satisfied with the reasons but making the whole thing a mere formality will cease. The Public Prosecutor must give reasons and the Court must make a decision to accord or to withhold its E consent giving its reasons.

Order Accordingly

1985 TLR p100
F
[zRPz]DAVID MATENGO AND KEFA WAMI v REPUBLIC 1985 TLR 100 (HC)

Court High Court of Tanzania - Dodoma
Judge Ruhumbika J

November 20, 1985
(PC) CRIMINAL APPEAL 4 OF 1985 G
Flynote
Criminal Practice and Procedure - Sentencing - Powers of Primary Court for offences not scheduled under the Minimum Sentences Act, 1972. H
Criminal Practice and Procedure - Sentencing - Enhancement of sentence on revision -Whether District Court can enhance sentence beyond what Primary Court could lawfully impose.
-Headnote
The appellants were convicted of unlawful wounding c/s 228 (1) of the Penal Code. I The Primary Court which convicted them imposed sentences
1985 LTR p101
RUHUMBIKA J
of fines of Shs.500/= against each of them. Unlawful wounding is not an offence A scheduled under the Minimum Sentences Act 1972. Therefore, the maximum sentence which the primary court could impose in this case was a term of imprisonment for twelve months. On revision by the District Court, the sentences were enhanced to imprisonment terms of two years. They appealed against the sentences. B
Held: (i) A proper sentence to impose is always at the discretion of the convicting court and a reviewing tribunal should not interfere with a sentence unless the convicting court misdirected itself in principle or the sentence is manifestly unsuitable; C

(ii) the sentences imposed by the Primary Court in this case were not improper and in sentencing the court did not misdirect itself in principle therefore the sentences as enhanced by the District Court cannot be sustained because they are in excess of what the Primary Court could lawfully impose and the original sentences are sufficient to serve D the ends of justice.
Case Information
Appeal allowed.
Cases referred to:

1. R v Juma Iddi, [1971] H.C.D., n. 373 E

Senguji, for the Republic
Judgment
Ruhumbika, J.: This is an appeal from the decision of the F District Court of Dodoma which court enhanced the sentences of the two appellants before this court to imprisonment for a period of two years each from the sentences of fines of Shs.500/= imposed against each of the

two appellants for the offence of unlawful wounding c/s.288 (1) of the Penal Code. The appellants were convicted by the Mvumi G Primary Court and sentenced as stated. The trial court also ordered the two appellants to pay Shs.2,000/= each as compensation to the complainant.

The main ground of complaint in this appeal is that the District Magistrate who enhanced the sentences of the appellants erred in enhancing these sentences to two years because H that was in excess of the powers of the Primary Court as provided for in the Third Schedule to the Magistrates' Court Act, 1984 (Act no. 2 of 1984).

Under the Primary Courts Criminal Procedure Code, paragraph 2 (1) (a) as contained in Act No.2 of 1984, the maximum term of imprisonment that a Primary Court can impose I for an offence which is

not scheduled under the Minimum Sentences Act, 1972, is twelve months. The offence A of unlawful wounding is not scheduled under the Minimum Sentences Act, 1972. Therefore, under the provisions of s.21 (1) (a) of the Magistrates' Court Act, 1984 the District Court cannot enhance a sentence in excess of what the Primary Court could B have imposed for that offence. This clearly shows that the District Court erred in enhancing the sentences to two years, which sentences are in excess of the powers of the Primary Court that convicted the appellants.

In addition to that obvious misdirection by the District Court, it was strongly argued for the appellants, and was conceded to by the Republic, that it was ab initio not justifiable C for the District Court to call the record and enhance the sentences imposed by the Primary Court. This is because the thinking of the District Magistrate in enhancing the sentences was induced by the fact that the injuries sustained by the complainant were classified by the medical personnel who treated the complainant as "dangerous". D However, notwithstanding the obvious fact that the medical report classified the injuries as "harm" and not "dangerous", the order of District Court in enhancing the sentences talks of "dangerous" injuries.

As was held by the late (Sir) Biron J., in the case of R. v Juma Iddi [1971] H.C.D. E n.373 "the proper sentence to impose in any particular case is at the discretion of the convicting court. A reviewing tribunal will not lightly interfere with the sentence imposed by such a court, unless the court misdirected itself in principle or the sentence itself is so manifestly inadequate to be unsuitable."

In this case, the trial Primary Court had the opportunity of assessing the whole evidence F brought before it and also to see the complainant's alleged injuries as shown on the medical report. After that the trial court decided on the suitable sentences to be imposed against the appellants. The Court sentenced each appellant to a fine of Shs.500/= and ordered each appellant to pay Shs.2,000/= as compensation to the complainant. G

This court does not find that the original sentences imposed by the trial Primary Court are so manifestly improper that they cannot be sustained nor does this court find that the Primary Court misdirected itself in principle on the sentences passed.

Therefore, apart from the fact that the enhanced sentences of two years by the District H Court cannot be sustained as they are in excess of what the Primary Court could impose under the law, this court does not see why the original sentences imposed by the Primary Court could not serve the ends of justice in this case. The Primary Court, as already observed, had the discretion to consider the sentences and unless those sentences were I manifestly improper that they could not be sustained the

District Court was not justified in interfering with them. A

Accordingly, this appeal is allowed. The sentences of imprisonment of two years imposed by the District Court against the appellants are set aside and the original sentences of fines of Shs.500/= against each appellant are restored. The Primary Court orders of compensation against each appellant remain unaltered. B

The two appellants have to be released from prison forthwith if not held on otherwise lawful grounds.

C Appeal allowed.

D

METTHUSELAH PAUL NYAGWASWA v CHRISTOPHER MBOTE NYIRABU 1985 TLR 103 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Mustafa JJA, Makame JJA, Omar JJA

30 October 1986

CIVIL APPEAL 14 OF 1985 E

Flynote

Land Law - Right of occupancy granted over land held under customary law - Whether the right of occupancy extinguishes the title held under customary law.

Land Law - Land held under customary law - Area declared a planning area - Whether F holder of land under customary law is automatically rendered a squatter.

Land Law - Disposition of land held under the Villages and Ujamaa Villages Act, 1975 - Approval of disposition by the village council not obtained - Disposition void. G

Villages and Ujamaa Villages Act, 1975 - Disposition of land under the control of a village - Approval of disposition by village council necessary.

Villages and Ujamaa Villages Act, 1975 - Disposition of land under the control of a village - Approval of disposition given by the Branch CCM chairman and ward secretary - Whether H approval given by Village Council.

Damages - Rightful owner of land could not build on it because of a trespasser - No evidence that owner was ready, willing and able to build - Only nominal damages awardable. I

-Headnote

The appellant had purchased an unsurveyed piece of land held under customary law. A The sale was approved by the CCM chairman and ward secretary. The peace included the land under dispute. Subsequently the respondent obtained a right of occupancy over the disputed land. Before the respondent could build thereon the appellant started to build on it claiming that he was the rightful owner of the land. The respondent B successfully sued him in the High Court. In deciding in his favour the High Court held that the right of occupancy issued to the respondent was obtained legally and without fraud, that the appellant had trespassed on the respondent's plot and that the right of occupancy issued to the respondent extinguished all prior rights and interests of the C appellant in the said plot. The Court awarded the respondent damages in the sum of Shs.287,200/= because he was prevented to build during the material period.

On appeal the appellant challenged the decision of the High Court mainly on the ground D that a granted right of occupancy does not supersede nor extinguish title over land held under customary law. He also challenged the amount of damages awarded to the respondent on the ground that there was no evidence that the respondent was willing, ready and able to build on the plot during the material period.

On the other hand it was argued in favour of the respondent that the appellant had no E title over the land because the sale of the land by one Patrick to the appellant did not have the approval of the village council as required under the Villages and Ujamaa Villages Act, 1975, and therefore, the sale of the said land was void and ineffectual.

Held: (i) A holder of a right of occupancy under native law and custom does not F automatically become a squatter when an area is declared a planning area;

(ii) the interest of the appellant over the land was not compulsorily registrable G and by virtue of section 33(1)(b) of Cap. 334 the right of the respondent vis-a-vis the appellant is not indefeasible and unimpeachable in the circumstances;

(iii) (Makame, J.A. dissenting) the sale of the land by Patrick to the appellant was void and ineffectual as it took place without the approval of the Village Council; H

(iv) no sufficient foundation had been laid for the amount of damages claimed because there was no evidence that the respondent was ready, willing and able to build but was prevented by the appellant during the material period. I

1985 TLR p105

MUSTAFA JJA, MAKAME JJA, OMAR JJA

Case Information

Appeal dismissed. Nominal damages awarded. A

Cases referred to:

1. Mohamed Nyakioza v Sofia Musa [1971] H.C.D. no.413
2. Nafco v Mulbadaw (C.A. Civil Appeal 3 of 1985) B
3. Patel v Lawrenson & Another [1957] E.A. 249
4. Alexander Paterson & Another v Kanji [1956] 23 E.A.C.A. 106.
5. Fazal Kassam v A.N. Kassam [1960] E.A. 1042

G.M. Fimbo, for the appellant C
H. Mkatte, for the respondent
Judgment
Mustafa, J.A.: This appeal involves the ownership of a plot of land in Mbezi Beach, Dar es Salaam. Nyirabu the respondent herein had sued Nyagwaswa D the appellant herein in the High Court (Bahati, J.) for trespass for damages. The respondent claimed that he was the registered owner of a right of occupancy over Plot 130, Mbezi Beach in the City of Dar es Salaam comprised in Title No. 22549, and that the appellant had trespassed on his plot and had commenced building thereon. He E prayed for an injunction to restrain the appellant from entering or remaining on the said plot and for damages.
The High Court gave judgment in favour of the respondent with costs. It found that the respondent was the legal owner of Plot 130, that the right of occupancy issued to the respondent was obtained legally and without fraud, that the appellant had trespassed on F the respondent's plot and that the right of occupancy issued to the respondent extinguished all prior rights and interests of the appellant in the said plot. It awarded damages to the respondent in the sum of Shs.287,200/=. From that judgment the appellant is appealing to this Court. G
The appellant had filed additional grounds of appeal with leave. Similarly the respondent had filed a notice containing other grounds for affirming the decision of the High Court. There was also a successful application by the respondent for an order for additional evidence to be taken. This Court took such additional evidence from Fidelis Kilulumo, a H Senior Co-operative Officer in the City Co-operative Office of the City Council of Dar es Salaam.
The following facts are not in dispute. The respondent applied for a plot of land to the City Council of Dar es Salaam in early 1978 and he got an offer dated 18.7.78. He followed up the offer and was duly issued with a certificate of Occupancy No. 22549 I over Plot 130, Mbezi Beach,

for a term of 99 years commencing from 1.7.1978. This was duly registered on 2nd A December, 1978. The Certificate of Title contained in its schedule a registered survey plan showing the boundaries of Plot 130. The respondent obtained a building permit from the City Council of Dar es Salaam. However before the respondent could build the appellant entered the said plot claiming ownership and commenced to build thereon B despite objections from the respondent. The respondent obtained a temporary court injunction and eventually the appellant ceased erection. A part of the appellant's building stands on about 79 sq. metres of Plot 130.
The appellant had purchased a piece of land for Shs.11,000/= from one Vincent Patrick C on or about 1.4.78 in Mbezi Beach. That piece of land was unsurveyed and allegedly included the land forming Plot 130. The appellant's title to the land consisted only of the informal agreement to purchase from Patrick and nothing else. The said sale was witnessed by the C.C.M. Branch Chairman at Kawe. The appellant was building the D foundation of his house when the suit against him was filed in the High Court, but now the house is semi-finished. He disputed that

the land he had purchased was within the boundaries or jurisdiction of the City Council of Dar es Salaam.

The additional witness Kilulumo has stated that Mbezi Village was in the Green belt E area, and although within the jurisdiction of the City Council of Dar es Salaam, was a rural as opposed to an urban area, and that the Village and Ujamaa Village Act of 1975, No. 21 of 1975, was designed to register such rural villages. He was of the decided view that Mbezi Beach was within the jurisdiction of the City Council of Dar es Salaam F and formed part of Mbezi Village which was registered as a village under 1975 Villages and Ujamaa Villages Act on 25.2.1976 and was incorporated on 1.12.76.

The trial judge found that the Mbezi Beach area on which the disputed Plot No. 130 is situated was declared to be planning area by the Ministry of Lands under the provisions G of section 13 of the Town and Country Planning Ordinance Cap. 378. He referred to G.N. 171 of 1966 which declared Mbezi, among other areas, to be a planning area, and he held that a survey plan of the said area was made by the Ministry of Lands. I think Prof. Fimbo who appeared for the appellant before us was attempting to question the H location of Plot 130. On a review of the evidence I am satisfied that Mbezi Beach is within the jurisdiction of the City Council of Dar es Salaam and is a planning area. I am also satisfied that Plot 130 is situated at Mbezi Beach, which forms part of Mbezi village and that this was the land in dispute between the parties.

The trial judge appeared to have held that once an area has been declared to be a I planning area, customary law concerning land holding

ceases to apply and a person who has a right of occupancy over a piece of land by A virtue of native law and custom loses that right to a party who obtains a right of occupancy under section 6 of the Land Ordinance Cap. 113 over the same piece of land. The judge was of the view that such a grant of a right of occupancy in a planning area would extinguish a previous holder's right based on native law and custom. The B trial judge based his conclusion on a proposition put forward by one Professor James in his book "Land Tenure and Policy in Tanzania". Following Professor James' view the trial judge held that land in urban areas cannot be acquired other than by direct grant under section 6 of Cap. 113. He held that once an area is given urban status by being C declared a planning area customary law ceases to apply to land in such an area and the right of a holder of a right of occupancy by virtue of native law and custom is extinguished and the holder becomes a mere squatter.

Prof. Fimbo submitted that the trial judge had erred in adopting the opinion of Professor James. He stated that the proposition put forward by Professor James was merely an D expression of opinion and has no legal basis. Prof. Fimbo pointed out that in the Land Ordinance Cap. 113, there are two types of rights of occupancy. In section 2 of Cap. 113:

> right of occupancy means a title to the use and occupation of land and includes the title of E native or of a native community lawfully using or occupying land in accordance with native law and custom.

One right of occupancy is created by a direct grant of public land by the President in terms of section 6 of Cap. 113, the other one is that of a person holding land in F accordance with native law and custom. Prof. Fimbo submitted that since the right of occupancy by virtue of native law and custom over the disputed land subsisted prior to the grant of a right of occupancy to the respondent and as there was no evidence adduced that such prior right had been revoked or acquired under the Land Acquisition G Act. No. 47 of 1967, the grant of a right of occupancy of the plot to the respondent in terms of section 6 of the Land Ordinance Cap. 113 was ineffectual since the President had no capacity or right to contract or grant such land to another person. Prof. Fimbo referred to Mohamed Nyakioza v Sofia Mussa C.A. 89/71 [1971] H.C.D. n.413 & Nafco v Mulbadaw C.A. 3/85 in support. H

Mr. Mkatte who appeared for the respondent would seem to contend that the trial judge did not hold that the right of a holder of a right of occupancy by virtue of native law and custom is extinguished solely because an area has been declared a planning area. He I preferred to support the trial judge's decision on another ground. He however seemed

to state that a right of occupancy granted in terms of section 6 of the Land Ordinance A Cap. 113 confers a superior and overriding title.

In my view the law in Tanzania on Land and Tenure is still developing and certain areas are unclear and would have to await the necessary legislation. At any rate I am not prepared, on the rather inconclusive and tenuous arguments advanced in this appeal, to B hold that the right of a holder of a right of occupancy by virtue of native law and custom is extinguished and he thereby becomes a "squatter" on an area being declared a planning area.

Prof. Fimbo submitted that in the High Court, the suit had proceeded on the basis that C Plot 130 was in an urban area, Mr. Kilulumo has testified that Plot 130 was situated in the Green belt, that is, a rural area. Prof. Fimbo contended that this piece of evidence by Kilulumo has brought in a new element in the case, and cannot be accepted or entertained. If I understood Prof. Fimbo correctly he was submitting that if plot 130 was D in an urban area then the provisions of the Town and Country Planning Ordinance Cap. 378 would apply and that in the circumstances, Act 21 of 1975, the Villages and Ujamaa Villages Act 21 of 1975 would not be applicable. Prof. Fimbo contended that there was an inconsistency and indeed a conflict between the provisions of section 35 of E Cap. 378 and Direction 5 of G.N. 168/75 (Directions made under the provisions of section 23 (4) of Act 21 of 1975). Prof. Fimbo was of the view that no reference should be made to the provisions of Act 21 of 1975 or to the directions made thereunder in deciding this appeal as Act 21 of 1975 was not at all applicable to the matter in dispute.

In reply Mr. Mkatte has submitted that the suit was filed in respect of a registered piece F of land in Dar es Salaam and the suit had to be tried in the High Court. That had nothing to do with whether the plot was in an urban or rural area, as rural plots are also registerable.

I am not impressed by Prof. Fimbo's submission on this point. I see no conflict between G Section 35 of Cap. 378 and Direction of G.N. 168 of 1975. Section 35 of Cap. 378 deals with the

need of obtaining consent before developing any land within a planning area, whereas Direction 5 of G.N. 168 of 1975 contains provisions for the obtaining of approval for the disposal of land etc. from the Village Council in respect of land of a H registered village. As I see it, if a registered village is within a planning area, then consent of the City Council to develop land has to be obtained. That in no way interferes with the need to obtain the other necessary approvals from the Village Council. I do not see why the provisions of Act 21 of 1975, or the directions made thereunder, if relevant, should not be looked at. I

Reference was made by both Prof. Fimbo and Mr. Mkatte to section

1095 TLR p109

MUSTAFA JJA, MAKAME JJA, OMAR JJA

33 of the Land Registration Ordinance Cap. 334. Section 33 reads in part: A

33 (1) The owner of any estate shall, except in the case of fraud, hold the same free from all estates and interests whatsoever, other than -

(b) (not applicable) B

(c) The interest of any body in possession of the land whose interest is not registerable under the provision of this Ordinance C

It is common ground that the respondent's certificate of occupancy was registered. Mr. Mkatte also contended that this was a first registration, without fraud. Mr. Mkatte submitted that section 33 (1) (b) does not help the appellant. He alleged that there was evidence from which it could be inferred that the appellant's estate in the disputed land D was registerable in terms of Cap. 334. The evidence, according to Mr. Mkatte, consisted in the value of the building, over Shs.500,000/=, being put up by the appellant, and in the view expressed by the appellant that he "wanted to own the place for as long as I wanted...." Mr. Mkatte submitted that it would follow that the appellant was putting E up a permanent and substantial building and was contemplating occupation for a term in excess of 5 years and the land was thus registerable. On the other hand Prof. Fimbo submitted that section 33 (1) (b) refers to "interest" in the land being registerable. He contended that the appellant's interest in the land which derived from native law and custom, was nowhere stated to be registerable under the provisions of Cap. 334. In any F event Prof. Fimbo denied that this was a first registration.

I am of opinion that this was not a first registration. I am also of the view that the interest of the appellant was not compulsorily registerable, and by virtue of section 33 (1) (b) of G Cap. 334 the right of the respondent vis-a-vis the appellant is not indefeasible and unimpeachable in the circumstances.

Mr. Mkatte referred to the additional evidence adduced and to his further grounds for affirming the Court's decision. He submitted that the sale or purported sale of the land by Patrick to the appellant was void and ineffective and the appellant had not acquired H any interest in or title to the land. The land is in Mbezi Beach and Mbezi Beach formed part of Mbezi village which was a registered village under the Village and Ujamaa Villages Act No. 21 of 1975. By G.N. No. 168 of 1975 Directions were made under Act 21 of 1975. Direction 5 (6) reads: I

1985 TLR p110

Except with the approval of the village council no person shall A

(a) transfer to any other person his right to the use of land in a village; or

(b) dispose of his house, whether by sale of otherwise.

Mr. Mkatte submitted that there was no approval obtained from the Village Council for B the sale or transfer of the land to the appellant. The transfer was therefore void and no interest could have passed from Patrick to the appellant.

It is not disputed that the land was held under a right of occupancy, assuming that C Patrick was the rightful person in possession, under native law and custom. Although Patrick had not indicated the extent of the land he had purported to sell to the appellant, I will assume for the purpose of this appeal, that the land included the area of Plot 130, or at any rate the portion of 79 sq. metres on Plot 130 on which a part of the appellant's unfinished building stands. D

It is common ground that the President can issue a right of occupancy in terms of section 6 of Cap. 113 to a person. However the disposition of a right of occupancy is subject to the Land Regulations made under Cap. 113. Regulation 3 of the Land Regulations 1948 (in Cap. 113 Supplement 64) reads: E

a disposition of a right of occupancy shall not be operative unless it is in writing and unless and until it is approved by the President.

There is a long line of judicial decisions which established that a disposition of a right of F occupancy without the necessary approval or consent was inoperative, unenforceable and void, see for instance Patel v Lawrenson & another [1957] E.A. 249, Alexander Paterson & another v Kanji [1956] 23 E.A.C.A.106 and Fazal Kassam v A.N. G Kassam [1960] E.A. 1042. Regulation 3 of 1948 would apply to rights of occupancy issued and granted under the provisions of Cap. 113.

It appears that following the same principle rights to land held in a registered village can only be transferred with the approval of the Village Council. And Mr. Mkatte submitted H that the sale by Patrick to the appellant, for lack of approval, was void and of no effect. The appellant had not acquired any right or title to any land. There was thus no right to be extinguished.

Prof. Fimbo submitted that the Directions issued under G.N. 168 of 1975 should be read in their context. He stated that the sub-directions of Direction 5 should be read I together. I will, for convenience, set out Direction 5 in full:

5 (1) Land for the use of a village shall comprise such areas of land as may be A reserved for the purpose and allocated to the village by the District Development Council.

(2) Subject to availability of arable land, the village council shall allot a piece of farmland to every kaya in a the village according to need and ability to develop it. The village council shall have power to determine the structural B pattern of farms in the village and the use thereof.

(3) Subject to an availability of land every kaya shall be entitled to an allotment at least one acre of land for the purpose of building thereon dwelling houses and for other domestic purposes. C

(4) Every piece of land allotted to a kaya for its use shall be subject to the overall control of the village council.

(5) The village council shall make provision for reserve land for future expansion of the village.

(6) Except with the approval of the village council no person shall - D

(a) transfer to any other person his right to the use of land in a village;

(b) dispose of his house, whether by sale or otherwise.

(7) In the exercise of its powers relating to planning and co-ordination of the activities of residents of the village engaged in agricultural activities the Village E Council shall ensure that every piece of land allotted to a kaya for its use shall at all times be maintained as an economic unit and no fragmentation or other use of similar kind shall be permitted. F

Prof. Fimbo contended that there was no evidence to indicate that Patrick had obtained his piece of land from the Village Council. Prof. Fimbo asserted that Direction 5, read as whole, would give the Village Council control only over land it had allocated to the kaya or villagers. He called attention especially to 5(1) and 5 (4) in support of this G contention. He submitted that if a villager held land in a registered village which was not allocated to him by the Village Council, then such villager or his land is not subject to the control of the Village Council. Indeed such land would not be subject to any control whatever. The provisions of Direction 5 (6) therefore would not apply in this case to the sale by Patrick to the appellant. H

In dealing with this point I have to consider the basic and root source from which all title to land in Tanzania is derived. I refer to sections 3 and 4 of the Land Ordinance Cap. 113. Section 3 (1) reads: I

1985 TLR p112

MUSTAFA JJA, MAKAME JJA, OMAR JJA

The whole of the lands of Tanganyika, whether occupied or unoccupied on the date of the A commencement of this Ordinance are hereby declared to be public lands.

Section 4 of Cap. 113 declared all public lands to be under the control and subject to B the disposition of the President and that no title to the occupation and use of such lands shall be valid without the consent of the President.

I have already dealt with the control of disposition of land held under a certificate of title granted by the President. In my view, in a registered village, all the land within it would C be similarly under the control of the Village Council and I do not read Direction 5 as only dealing with land actually allocated to villagers by the Village Council. I think Direction 5 (6) means exactly what it says, that without the approval of the Village Council, no person shall transfer his land. I cannot envisage that certain lands and D certain villagers living in a registered village would be exempt from its jurisdiction and control. That would create an absurd situation. If there were exemptions, it was easy to have said so in the directions.

Prof. Fimbo also submitted that no approval of the Village Council was obtained for the grant of the land in dispute to the respondent. True, but I think the directions in G.N. E 168/75 are only concerned with the relationship between the Village Council and its kaya and villagers, and do not concern the superior landlord, an outside authority in the person of the President. However, should the respondent wish to transfer or dispose of his land, I would think he has to

obtain two sets of approval, approval from the Village F Council and approval in terms of Land Regulation 3.

I am of the view that the sale by Patrick to the appellant of the land in Mbezi was void and ineffectual as it took place without the approval of the Village Council. The appellant had not acquired any right or title in the land which could defeat the title in the G land acquired by the respondent by virtue of the certificate of occupancy issued to him. There was no extinguishing of the appellant's anterior title to the land; he never had acquired a title to or interest in the land in dispute. Indeed the appellant may well think it advisable to take steps to regularise his occupation of the land he had allegedly H purchased from Patrick.

I will now deal with the damages awarded to the respondent. The trial judge had referred to the difference in the estimated costs of the construction of the proposed building by the respondent for the periods 1978/79 and 1983. The difference amounted to Shs.287,200/=. The delay in building was due to the act of the appellant. The trial I judge accepted the figure as reasonable.

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MUSTAFA JJA, MAKAME JJA, OMAR JJA

Prof. Fimbo submitted that there was no evidence that the respondent had taken A possession of the plot and had purchased or was prepared to place building materials thereon for erection purposes. There was only evidence adduced concerning the cost of construction in the two periods; there was no evidence that the respondent was actually ready willing and able to build in 1978/79. An approved building plan by itself does not B necessarily mean that the respondent was ready to proceed.

I think that there is merit in Prof. Fimbo's submission. There should have been evidence that the respondent was ready willing and able to proceed to build, but was prevented from doing so in 1978/79 by the appellant's action. I think a nominal sum should have C been given for damages in the circumstances, as I am not satisfied that a sufficient foundation had been laid for the amount claimed. I would reduce the damages awarded to a nominal sum of Shs.5,000/=.

The trial judge had ordered the demolition of that portion of the building which was built on a part of plot 130. He ordered the appellant to demolish the said portion and remove D the materials from plot 130 at his own expense by a certain date after which such material, if not removed, would become the respondent's property.

I am satisfied that this is a reasonable order as the appellant had proceeded with the erection even when he knew that the respondent had applied for an injunction. It E appeared to me that the appellant had wanted to confront the respondent with a fait accompli. It was at rather a late stage that the appellant desisted from erection. The structure is completely useless to the respondent. The appellant has mostly himself to blame for the loss to him due to this order for demolition. F

In the result the appeal is dismissed, except that the award of damages in the sum of Shs.287,200/= in favour of the respondent is set aside and a sum of Shs.5,000/= is substituted therefor. The order for costs in the High Court remains undisturbed. G

As for the costs of the appeal, since the appellant has succeeded on the item of damages awarded, I would order each party to bear his own costs.

As Omar, J.A. agrees, there shall be an order on the terms above stated.

H Appeal dismissed

Makame, J.A. (dissenting): I had the advantage of reading in draft the elaborate judgment of my learned brother, Mustafa, J.A. I must confess that this appeal has caused me considerable anxiety. I

I have no doubt about the identity and location of the plot in dispute.

1985 TLR p114

MAKAME JA

It is Plot No. 130 and forms part of the parcel of land which the appellant got from A D.W.2 Vincent Patrick Mmole on 1st April, 1978. It is the plot in Mbezi Village to which Fidelis Paulo Kilulumo, who gave additional evidence before this Court, was taken by the respondent.

When the respondent was made an offer of the parcel of land in dispute on 18th July, B 1978 the area had already been designated and registered as Mbezi Village, under the Villages and Ujamaa Villages Act, 1975. The spirit and effect of the Act, and the various regulations made under it, is among other things, to place the land within the jurisdiction of the Village at the disposal of the village and its kayas, under the C administration of the village, for the economic and social transformation and development of the village and its inhabitants. The State decided that it should be so, and it would defeat the objective of the law if grants over the same land were made, even by superior authorities without consultation, or at the very least knowledge, of the village authorities. D This, I am satisfied, is what happened in the instant case, as is clearly brought out by the testimony of D.W.3 Ally Kibwana, the C.C.M. Branch Chairman of the area and one of the persons who witnessed the transactions between the appellant and Mmole. There is no evidence that at the time of the said transaction the area had already been E surveyed, infact the Defence evidence is that it had not been. Once the appellant got the plot, in April, 1978, he contacted the Kinondoni District Land Office for a survey and title, and the same District Land Office turned round and made an offer to the respondent in July, 1978, behind the appellant's back as it were, when it knew that the F appellant was in possession and wanted a title. According to Kilulumo "The Land Office would not survey a piece of land and allocate it to somebody without involving the Village Council".

According to the evidence, Mole got the piece of land from the local authorities, way G back in 1963. Mbezi Village found him already there therefore. His transfer of his customary right over the land was witnessed and sanctioned by the village authorities including the Ward Secretary who affixed his official stamp on the document. There is also an endorsement to the effect that the Party Office had no objection. One of the witnesses to the transaction was D.W.3 the C.C.M. Chairman of the Branch in the H Village. I am unable to agree with Prof. Fimbo that the Village Council was not necessary in the case of the transaction involving his client. In my view all land transactions in the village need village council approval. If I understood Mr. Mkatte for the respondent, and I think I did, he submitted that such approval was necessary and

was not obtained. As already indicated I go along with him on the first part - that I approval was necessary, but I do not share the view that the transaction was void
1985 TLR p115
MAKAME JA
for lack of such approval. I look at the realities of the situation. The Chairman agrees, A the Ward Secretary says there is no objection, and the official stamps are affixed in the presence of witnesses. Those authorities were acting on behalf of the village and I am satisfied that the sale by Mmole, and the purchase by the appellant, were effective and good in the circumstances. The transaction was regulated by the authorities and B there is no evidence that the portion of land had at the material time already been alienated from the village.
I am of the view that the respondent's Right of Occupancy was issued in improper circumstances and did nothing to disturb or extinguish the appellant's right. C
I would allow the appeal with costs.
Omar, J.A.: I have read both the judgment of Mustafa, J.A. and Makame J.A. on this case and I am convinced that the legal arguments in favour of the ownership of the disputed piece of land by the respondent are more cogent than those advanced by the D appellant. It is not disputed that appellant bought this piece of disputed land (in which plot 130 is also included) from Patrick but did these village functionaries who witnessed the transaction act as Members of Village Council? There is evidence that they did not therefore, there was no consent given. Consent is legal requirement whether it be given E by the President of the United Republic or by the Village Council. We cannot say it was necessary but not fatal to the transaction when it was not obtained. And when the letter of the law is clear and unambiguous on any matter we do not look for its spirit. Appellant may have wanted to get a normal right of occupancy over the plot he "bought" F from Patrick and he sent his application to the land office much ahead of the respondent but his application was ignored or turned down and the respondent's application was granted. A number of applications are sent to the Land Office, those which are approved are of the successful applicants and can claim ownership over G surveyed areas; those applications which are not acted upon its owners cannot be heard to say that they were first in applying and, therefore, would go ahead with the development of the land, that would really be naive on their part.
All in all I would uphold the Judgment of Mustafa, J.A. because the law on this subject has been exhaustively discussed by him and he has left no stone unturned in arriving at H the just decision affecting both parties.
I Appeal dismissed
1985 TLR p116
A
[zRPz]KULWA DAUDI v REBECA STEPHEN 1985 TLR 116 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

May 30, 1985
MISCELLANEOUS CIVIL APPLICATION 2 OF 1985
Flynote
Civil Practice and Procedure - Revisionary Powers of the High Court - When may be B invoked - Magistrates Courts Act, 1984, s.44(1)(b).
Civil Practice and Procedure - Ex-parte judgment - Judgment entered without calling upon the plaintiff to prove his case - Whether proper - Order 14 Rule 2(b) of the Civil Procedure Code. C
Civil Practice and Procedure - Service of summons - Whether substituted service may be ordered where the defendant is not trying to avoid service - Order 5 Rule 20(i) of the Civil Procedure Code.
Landlord and Tenant - Ejection orders - Order to eject tenant in arrears of rent - Whether D reasonable - Rent Restriction Act, 1962, Cap. 479, s. 19(2).
-Headnote
The respondent, a landlady had filed a suit in the Mwanza Resident Magistrate's Court E claiming arrears of rent from the applicant, and vacant possession of the premises. The suit was filed after the applicant had left, with the respondent's knowledge, on a trip to Kenya. The court ordered substituted service by affixing summons on the door of the last known premises of the applicant and subsequently, ex-parte judgment was entered F in favour of the landlady without calling upon her to prove her case. The tenant then applied to the High Court for revision under s.44(1)(b) of the Magistrates' Courts Act, 1984.
Held: (i) The revisionary powers of the High Court may be invoked by any party to civil G case or on the motion of the High Court to correct an error resulting in injustice committed by a district court or court of a resident magistrate;

(ii) the ex-parte judgment in this case offended against the law because it was entered into without calling upon the plaintiff to prove her case as provided for under H Order 14 Rule 2(b) of the Civil Procedure Code;

(iii) Considering that the plaintiff knew from the beginning that the defendant was away only temporarily, the trial court exercised its discretion wrongly by ordering substituted service in the absence of any reason to believe that the defendant was trying I to avoid service;
1985 TLR p117
MWALUSANYA J

(iv) before making an order for ejectment or recovery of possession, the trial A court ought to have made a specific finding and to have satisfied itself that, having regard to all circumstances, it was reasonable to make such an order.
Case Information
Application allowed. B
Cases referred to:

1. Hindson v Kersey (1765) 8 How.St.Tr. 57.

Judgment

Mwalusanya, J.: This is an application filed by one Kulwa d/o Daudi C for an order to set aside the decision of the Mwanza Resident Magistrate's Court of 22/9/1984 which was passed ex-parte against this applicant. The respondent in this application is Rebecca d/o Stephen who was the plaintiff in the lower court.

The brief history of the case is as follows. On 2/8/1984 the respondent who is a D landlady filed a suit at Mwanza RM's Court praying for vacant possession of her premises and she claimed arrears of rent against her tenant, the present applicant. When the suit was filed, the tenant was away on safari to Kenya, and that fact was to the landlady's knowledge.

Substituted service was ordered on 25/8/1984 by affixing summons on the door of the E last known premises of the tenant; and after due service ex-parte judgment was on 22/9/1984 entered in favour of the landlady. Later execution of the decree was duly made. It was not long when the tenant filed this application.

At first blush I was of the view that this application was misconceived as the proper F procedure was for judgment-debtor to apply to the trial court to set aside its ex-parte judgment. However on close examination of section 44 (1) (b) of the Magistrates' Courts Act No. 2 of 1984 under which this application is made, I find that the application is in order. The section which is referred to above states: G

The High Court may, in any proceeding of a civil nature determined in a district court or a court of a resident magistrate, on application being made in that behalf by any party or of its own motion, if it appears that there has been an error material to the merits of the case involving H injustice, revise the proceedings and make such decision or order therein as it sees fit.

So the question in this application is whether it has been sufficiently shown that there has I been an error at the trial resulting in an injustice to the applicant.

1985 TLR p118

MWALUSANYA J

The first complaint raised by the applicant is that the ex-parte judgment was wrongly A entered as there was no order on 8/9/1984 directing substituted service as assumed by the trial magistrate. The short answer to that complaint is that that was a mere slip of the pen. The trial magistrate had meant 25/8/84 and not 8/9/84 when the order for B substituted service was given. So in that respect there was no impropriety as contended by the applicant.

The second complaint raised is that judgment was entered ex-parte without calling upon the plaintiff to prove her case by oral evidence or affidavit. On perusal of the record I find that this remonstrance has merit. This was a case which fell squarely under Order C 14 rule 2 (b) of the Civil Procedure Code Act No. 49 of 1966 and so judgment could only be entered ex-parte after plaintiff has proved its case by oral evidence or by affidavit. Failure to comply with that procedure, must be offending the law. So the judgment passed was against the law. If plaintiff had testified perhaps the court could D have found that she was entitled to less rent than she had applied for. That matter about the amount of rent in arrears has been the subject matter of dispute canvassed during the hearing of this application. I was not in the position to resolve it in the absence of any evidence adduced at the trial. E

And there is great force in the submission by applicant that it was a mockery of the legal process when the trial court exercised its discretion by ordering substituted service, where it was apparent on the plaint that applicant was on safari. The tenant had left with a message to the landlady that she was going to Kenya and would be back in due course. The tenant had locked all her belongings in the room. The trial magistrate F should note that as given in Order 5 rule 20 (i) of the Civil Procedure Code, substituted service can only be ordered if the court is satisfied that there is reason to believe that the defendant is keeping out of the way for the purpose of avoiding service or that for any G other reason the summons cannot be served in the ordinary way. In this case it was not investigated at all that the tenant was avoiding service. In fact the tenant was not aware of the suit, and she had left the country with the blessings of the landlady. I agree that the trial court exercised its discretion wrongly in ordering substituted service and that resulted in an injustice. The trial magistrate should always remember that judicial H discretion is not the indulgence of a judicial whim, but the exercise of judicial judgment, based on facts and guided by law. Lord Camden had always considered discretionary powers to be dangerous and so he lamented in Hindson v Kersey (1765) 8 How. St. Tr.57 thus: I

The discretion of Judge is the law of tyrants; it is always unknown;

it is different in different men; it is casual and depends upon constitution, temper and A passion. In the best it is often times caprice, in the worst, it is every vice, folly and passion to which human nature can be liable.

That ends up the discussion on why I think substituted service should not have been B ordered in the circumstances of this case.

There is also another reason for which the decision of the trial court cannot be spared of strictures. Under section 19 (2) of the Rent Restriction Act 1962 Cap. 479 (as amended), no order for ejectment or recovery of possession of premises can be made unless the court is satisfied by the landlord that having regard to all the circumstances of C the case it is reasonable to make such an order. So after the court had found that the tenant was in arrears of rent, it had to proceed further and make a specific finding as to whether it was reasonable to make an order of ejectment. That much the trial court failed to do and so it erred. Perhaps it could be said it is unreasonable to condemn the D tenant unheard and so decline to make an order of ejectment. There are numerous other factors to be considered as to whether it is reasonable to make an order of ejectment.

For the reasons optimised above the proceedings of the trial court have to be revised. I F accordingly set aside the ex-parte judgment and order that the suit proceed to trial in accordance with the law.

Application allowed.

G

[zRPz]IN THE MATTER OF THE DETENTION OF DISHON SUSA YAMO AND JOHN YAMO AND THE REPUBLIC 1985 TLR 119 (HC)

Court High Court of Tanzania - Mwanza
Judge Mushi J

4 June, 1985
MISCELLANEOUS CRIMINAL CAUSE 7 OF 1985
Flynote
Administrative Law - Application for habeas corpus - Detainees held under a deportation order under which they had previously been detained and subsequently released - H Whether detainees legally held.
-Headnote
Dishon Susa Yamo and John Yamo were arrested and detained in 1984 under a deportation order issued in 1983. Towards the end of 1984 they were released. In I March 1985, they were arrested again. When their
1985 TLR p120
MUSHI J
arrest and detention were questioned in court the authorities produced a photostat copy A of the 1983 deportation order. The court considered whether the arrest and detention of the two persons in 1985 under the 1983 deportation order was legal.
Held: (i) The release of the detainees towards the end of 1984 meant that the B deportation order under which they were being held had been rescinded;

(ii) once the deportation order has been rescinded against a deportee, the deportation order dies as against that particular person and it can never apply to him again; C

(iii) the arrest and detention of the two persons in 1985 under the rescinded deportation order was illegal.
Case Information
Order accordingly D
No case referred to.
Tendwa, for the Republic
Judgment
Mushi, J.: This is an application for Habeas corpus under Section E 348(1) of Criminal Procedure Code. The application has been filed by one Patrick Odongo Yamo for and on behalf of his two brothers by the names of Dishon Susa Yamo and John Yamo. The application is supported by affidavit which states as follows:

1. That I am the brother of one Dishon Susa Yamo and John Yamo who are both under F custody and incarcerated at Tarime Prison.

2. That the two referred to in Para 1 hereof were arrested at Kowak Village in Tarime District on 30th March, 1985 and so far no charges have been preferred against them. G

3. That earlier on the two referred to in Para 1 hereof were arrested by the police and were only released after I complained to the State Attorney in Mwanza.

4. That the two referred to in Para 1 hereof are being held illegally by the Police in Tarime. H

5. That I pray that this Application be granted and the relevant authorities be ordered to release the two referred in Para 1 hereof forthwith.

The application was set down for hearing on 24.5.85 and as the complaint was against I the Police and or Prison authorities in their capacities

1985 TLR p121

MUSHI J

as agents of Government, the application together with the affidavit were served on the A Attorney General through his Chambers in Mwanza. On the hearing date, the Attorney General was represented by Mr. Tendwa, State Attorney from Mwanza Chambers.

In support of the affidavit, Mr. Patrick Odongo Yamo, the applicant, stated that Dishon B Susa Yamo and John Yamo were arrested at Tarime on 30/3/85 by police and were taken to police custody on allegations that they were in possession of ammunition contrary to law but when their houses were searched nothing illegal was found in their premises. The applicant stated that from the date the two people were arrested no charge has been made against them nor have they been sent before a court of law and it C is not known why these people have been detained or what is going to happen to them. The applicant further said that these same persons were arrested in July 1984 on allegations that they were habitual criminals. The applicant said that after the two people were arrested and noting that no charges were brought against them, he complained to D the Regional Party Chairman and Regional Commissioner of Mara Region as well as to the Attorney General's Chambers in Mwanza. As a result of his complaints, the two brothers were released in December 1984. The applicant said that the same persons were arrested again this year and detained without charges being preferred against E them, he had no alternative except to file this application to request the court to summon the authority who are holding the two persons illegally to produce the persons and to show cause as to why they should not be set at liberty.

Mr. Tendwa had no objection to the application and he was of the view that the F authority holding the two persons be summoned to appear so that it can be determined as to the legality of these persons' detention.

Having read the affidavit and hear the applicant, I was satisfied that summons be issued as requested. As we were not sure as who was actually holding the detainees I directed the summons be issued and in the following manner: G

You: The Regional Prisons Officer Mara
Region and/or The Officer in charge
Prison Tarime District H

AND

The Regional Police Commander Mara Region and/or The Officer Commanding District Tarime District I

1985 TLR p122

ARE HEREBY

Ordered, without fail, to bring before this court on 31/5/85 at 9.00 a.m. the following A persons who are alleged to be unlawfully detained by you. The persons are Dishon Susa Yamo and John Yamo.

You are required to bring with you the original of any warrant or order for the detention, B if any, for the above mentioned persons or show causes why the persons so detained should not be released forthwith.

GIVEN UNDER my hand today the 24th day of May, 1985.

Sgd. N.M. MUSHI C

JUDGE

On 31st May 1985, none of the persons mentioned in the summons appeared as D required. However a prison warden brought to the court two people who were Dishon Susa Yamo and John Yamo. These are the people who were said to be illegally held.

The persons alleged to have been illegally detained having appeared in person they were allowed to narrate what their problems are. Dishon Susa Yamo, stated and I quote: E

D. S. YAMO & J. YAMO & THE REPUBLIC (Mushi, J.)

I am being arrested very often but I do not know what crime I have committed. I want to know F what offence I have committed. At first I was arrested on 11/7/84 but I was released on 16/12/84. When I was arrested they told me that I was a cattle thief but I have never stolen any cattle. I was not charged with any offence. I was released by OCD Tarime. Again on 30/3/85 G police came and arrested me, upto-now I am in remand and I haven't been charged with any offence.

And John Yamo said:

Last year in July on 11th I was arrested. I was remanded till 16/12/84 when we were released. H On 30/3/85 I was arrested again and sent to Tarime Police station where I was released on 5/4/85. I was told to go home but I was required to report back on 9/4/85. I reported as I was told by O.C.D. Tarime. When I reported as I was told, the O.C.D. asked me whether last year I I had been arrested. I told him that I had been arrested and I was released by

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MUSHI J

himself. The O.C.D. told me that my problem was a difficult one and I would be locked up. A The O.C.D. told me to stop "maneno". Since then I have been in remand. I have not been told what offence I have committed.

Mr. Tendwa - State Attorney who appeared for the Republic informed the Court that on B 27/7/84 a complaint was received in their office from one J.P. Yame working with Ministry of Justice complaining about his two brothers - i.e. Dishon Susa Yamo and John Yamo who were being held by the Police at Tarime and he wanted to know if they had been lawfully detained. As a result of this complaint, on 8/8/1984 a letter was C written to the R.C.O. Mara enquiring about the matter. Mr. Tendwa further stated that their office received a copy of a letter written to O.C.D. Tarime by the R.C.O asking for explanation as to why the applicants were in remand without being charged. Mr. Tendwa stated further that there was no reply from either R.C.O or O.C.D. Tarime. But in December, 1984 the person who wrote the complaint called in their

office in D Mwanza and informed them that his two brothers i.e. Dishon Susa Yamo and John Yamo had been released. Again, Mr. Tendwa stated, that on 13/5/1985 another complaint was received in his office to the effect that Dishon Susa Yamo and John Yamo had been arrested on 30/3/85 and that up to the date of the complaint, the two people E had not been charged. This time the complaint was written by one Patrick Odongo Yamo. This is the person who filed the application for summons to issue on behalf of the applicants and he is their brother. After receiving the complaint, a letter was written to R.C.O. Mara enquiring about the position of the applicants. Up to the time of the F hearing of this applications, no reply had been received. However, Mr. Tendwa, stated that the Prison Sergent who brought the applicants handed to him a photostat copy of a deportation order under Cap. 38. The deportation order was from Regional Prisons Officer Mara. The said deportation order is signed by the President and it is dated 24th G September, 1983. And the two applicants are among 280 people listed to be deported from Mara Region to Ruvuma Region. The applicants are listed as Nos. 210 - Susa Yamo and 211 - John Yamo.

Mr. Tendwa continued and stated, and I quote:

I fail to understand as to why the two people were not arrested since September 1983 until H July 1984. It is not known whether their arrest in July 1984 was in connection with the deportation order or another matter. Even if the two applicants were arrested in connection with the order of the President of 24/12/84, again I do not know as to why they were rearrested I in March 1985. I

have no idea as to whether there was any other order to arrest them. The persons who are in A sound position to give explanations regarding the arrests and release of these applicants are the Regional Police Commander, Mara, the Regional Prisons Officer Mara, The Regional Crime Officer Mara and the O.C.D. of Tarime District but all of these officers were served but B none of them came. I have no information at all as to why these officers did not come.

The question before me now, is whether on the facts as have been revealed, and to a very large extent undisputed, are the applicants being held illegally or not. It would C appear to me that by sending a photostat copy of the deportation order signed by the President the Regional Prisons Officer, Mara, is telling us that the two applicants are lawfully being held since their names appear among the people to be deported listed in the order.

Under Cap. 38, the President may order a person to be deported to any part of the D country if he is satisfied that such person is conducting himself so as to be dangerous to peace and good order in any part of the country. This is provided under section (2) of Cap. 38 which if I may reproduce here reads: E

2. Where it is shown by evidence on oath, to the satisfaction of the President, that any person is conducting himself so as to be dangerous to peace and good order in any part of Tanganyika, or is endeavouring to excite enmity between the people of the F United Republic and the Government or is intriguing against Government, the President may, if he thinks fit by

order under his hand and official seal, order that person to be deported from any part of the Territory to any other part of the Territory. G

And by section 3 there is no appeal against a deportation order made under the Ordinance. And this is not an appeal against the said order. In fact what the applicants are saying is that they are not even aware of the deportation order otherwise they would H not have made this application. The deportation order is dated 24th September 1983. As the learned State Attorney pointed out it is not known as to why it took so long to arrest the applicants if at all the arrests in July, 1984 were in connection with the deportation order. There is no evidence to show that the arrests of July, 1984 were in connection with the deportation order. If it had been so, the applicants should have I been informed that they were being deported and their family members be informed. An order of

deportation is not a secret document. The reasons which make the President order a A particular person to be deported from one part of the country to another may be secret but the order of deportation itself is not secret thing.

Assuming that the arrest of July 1984 were in connection with the deportation order in question, then the arrests were lawful and their detention was also lawful under the B deportation order dated 24th September 1983. There is evidence from the applicants themselves to the effect that after being arrested in July 1984 they were released in December 1984 and they were free citizens until 30/3/85 when their liberty was taken away by the Police at Tarime by arresting them and locking them up till today. The C question is whether their arrests in March 1985 and their continued detention is lawful. The answer to this question is clearly No. This is so because if we assume that the applicants were detained under the deportation order, then their release in December must have been under section 8 of Deportation Ordinance. This section reads and I D quote:

> 8. The President may by order under his hand and official seal, vary or rescind any order of deportation made under this Ordinance, or without varying or rescinding the order of E deportation, may grant permission in writing to the person deportated to leave for a temporary purpose the part of Tanganyika to which he has been deported for some other part named in such permission. Such permission may be granted subject to such conditions as to the President may deem proper, and any person who shall fail to F comply with the conditions attached to any permission granted to him as aforesaid, shall be liable to the penalties provided in the next section.

As the section clearly says, after a deportation order has been issued against a particular G person such person can only be released by the order of the President in writing and under the official seal. If the President wishes the deportee to be released, he will rescind the order. Or without rescinding the deportation order, the President may vary the deportation order in any manner that he deems fit or grant permission to the deportee H to leave one part of the country temporarily or otherwise on conditions that may be specified by the president in writing. Since the applicants were released in December 1984, and it had not been shown that their release was

other than under Section 8 of Cap. 38 quoted above, and further that it has not been shown that their release was I conditional in any
1985 TLR 126
MUSHI J
manner, the only logical conclusion is that the deportation order against them was A rescinded. It must be so because there has been no allegation that particular person and it can never apply to him again. In this particular case, the moment the deportees, Dishon Susa Yamo and John Yamo, were released, the deportation order dated 24th September 1983 ceased to apply against them. If the President is again satisfied that the B applicants ought to be deported, a new deportation order has to be issued as if the former one had not been made. Since it has not been shown for what offence the applicants were arrested on 30/3/85 and under what authority they are being detained, their arrests and detention can be nothing other than illegal. No citizen of this country or C any lawful visitor to this country ought to have his freedom or liberty restrained by the Police for any second unless such person has contravened any of the provisions of the law of the state. It is therefore declared that the arrests of Dishon Susa Yamo and John Yamo on 30/3/85 and their continued detention is unlawful and illegal. And as no cause D has been shown as to why they should not be released, it is ordered that Dishon Susa Yamo and John Yamo be released forthwith from the Prison. As both persons are before the Court, it is ordered that this order takes effect as of this moment and the two persons are declared freed and may go about their business unrestrained.
As for the Prison and Police officers who were summoned to appear and answer the E complaint levelled against them, but have decided to disobey the order to them I say:
The laws which they are enforcing against others are equally enforceable against them. F Order accordingly.
1985 TLR p127
A
[zRPz]DIRECTOR OF PUBLIC PROSECUTION v OPHANT MONYANCHA 1985 TLR 127 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

June 15, 1985
CRIMINAL APPEAL 10 OF 1985 B
Flynote
Evidence - Admissibility - Admissibility of Statements made to the Police - Admissibility of Statement tendered in court in the absence of their makers - Evidence Act, 1967, s 34B(2) C
-Headnote
The respondent was charged with two offences of corruptly soliciting and receiving a bribe c/s 3 of the Prevention of Corruption Act 1971. The prosecution sought to rely on Police statements

made by two witnesses but the two witnesses were not in court. The trial magistrate held that the statements were inadmissible in evidence. In the event the D prosecution failed to prove its case beyond reasonable doubt and the respondent was accordingly acquitted. The Director of Public Prosecutions appealed to the High Court arguing that the trial magistrate erred in rejecting the statements because the conditions for admitting them had been fulfilled according to s.34B(2)(a) of the Evidence Act, 1967. E

Held: The correct interpretation of s.34B(2) of the Evidence Act, 1967, is that in order for a statement to be admissible under that section, all the conditions laid down in all the paragraphs, that is from (a) to (f), of the subsection must be met. As the conditions laid F down in some of the paragraphs were not met in this case, the trial magistrate correctly rejected the admission of the two statements.

Case Information

Appeal dismissed. G

Case referred to:

1. R v Hassan Jumanne, High Court, Dodoma

Criminal Revision 2 of 1983 (unreported)

S. Kidela, for the appellant H

Judgment

Mwalusanya, J.: The D.P.P. is appealing against the acquittal of Police Constable No. C.4458 Ophant s/o Monyancha who was acquitted by the Mwanza District Court for two offences of corruptly soliciting and receiving a bribe c/s 3 I (1) and 3 (a) of the Prevention of Corruption Act ,No. 16 of 1971. It was alleged at the trial that respondent

1985 TLR p128

MWALUSANYA J

solicited and received Sh.400/= from one Omar Aden as an inducement to him for A releasing the said Omar Aden on police bail. The said Omar Aden had been in police custody in connection with the contravention of the provisions of the Immigration Act.

The said Omar Aden could not be procured as a witness for the prosecution at the trial B as he had apparently already gone back home to Somalia. The prosecution, in the circumstances, sought to produce as evidence the police statement of Omar Aden under s. 34B (2) of the Evidence Act No. 6 of 1967 as amended by Act No. 19 of 1980. The trial magistrate held that the police statement was inadmissible in evidence, as was C the other similar police statement of one Philip Joseph Tarimo. In the final analysis the learned trial magistrate held that in the absence of the police statement of Omar Aden or his oral evidence, the prosecution could not succeed to prove its case beyond reasonable doubt. So the respondent was accordingly acquitted.

At the hearing of the appeal the State Attorney Mr. Kidela conceded that in the absence D of police statement of Omar Aden or his oral testimony, the prosecution could not succeed to prove its case beyond any reasonable doubt. However he argued that the trial magistrate erred in rejecting the police statements of Omar Aden and Philip Joseph Tarimo under s. 34B (2) (a) of the Evidence Act, as all the conditions for its admission, E were fulfilled by the prosecution. So

he concluded by submitting that had the trial magistrate not misdirected himself, a conviction would have been entered.

In my judgment I find that there appears to be a misconception looming large with the F Republic, as regards the correct interpretation of s. 34B (2) of the Evidence Act (as amended). The State Attorney thinks if any of the conditions (a) to (f) of s.34B (2) are fulfilled then the Police statement is admissible in evidence. Pursuant to that reasoning, the second ground of appeal in the Memo of Appeal reads: G

That having made a finding that Omar Aden was out of the country, the trial magistrate should have admitted the same Omar Aden's statement under s.34B(2) (a) for the Evidence Act, 1967.

However the view held by the State Attorney is clearly wrong. In order for a statement H to be admissible under that section, all the conditions laid down under s.34B (2) that is from (a) to (f) must be met. That is the correct interpretation of that section. On delving into the law reports and other materials I note that this legal point is not virgin soil as Lugakingira, J. had occasion to deal with the matter and he holds a similar view. In the I unreported case of Dodoma High Court Crim. Revision No. 2 of 1983

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of R. v Hassan s/o Jumanne, Judge Lugakingira had this to say: A

The provisions of s. 34B (2) are cumulative and all the paragraphs (a) to (f) have to be satisfied. Hence to admit the statement, it must be reasonably impracticable to call the deponent; the statement must have been signed by him; it must contain a declaration of the B person who read it to the effect that it was so read.

So that is the position in law, and not what the State Attorney wanted the court to believe.

Now in the present appeal, the trial magistrate held that the police statement was not C admissible because the condition under s.34B (2) (c) was not fulfilled in that the statement did not contain a declaration on liability for perjury. During the hearing of the appeal the State Attorney Mr. Kidela produced the police statement for this court to peruse. On perusal I was satisfied that no such declaration on liability for perjury was D made. The derelict was crucial as it is the one which at least lends assurance to the fact that the maker would speak the truth to escape prosecution for perjury. Therefore the absence of the declaration was definitely fatal. If we were to hold otherwise, a miscarriage of justice might result. So I hold that the trial magistrate rightly rejected the admission in evidence of the two police statements. E

It would also appear that the condition laid down under s.34B (2) (d) was not fulfilled in that a copy of the police statement was not served on the accused before the hearing of the case. It was only produced in the course of the trial when the prosecutor sought to F tender it in evidence. That was clearly wrong and I think that irregularity was also fatal. And the condition laid down under s.34B (2) (e) stipulates that the accused may object to the admissibility of the police statement within ten days of its service. In this case as soon as the prosecutor applied to court to have the police statements admitted, the accused objected in the following terms: G

The taxi driver (Philip Joseph Tarimo) has not left the country. Omar Aden is not dead. Let the prosecution make efforts to trace him so that he can come and say if I received the money H from him as alleged. The statement of the witness may be false.

The objection to the admission of the two police statements could not have been clearer if the above abstract is anything to go by. And as there was objection, the two statements could not be admitted in evidence. I

From the foregoing I am of the considered view that the trial

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magistrate correctly rejected the admission of the two police statements. It would have A been a travesty of justice if the two statements were admitted in evidence contrary to the rules of evidence.

Like the learned State Attorney I hold the solid view that without the testimony of the witness Omar Aden or his police statement, the prosecution could not succeed to prove B its case beyond any reasonable doubt. This is because anything attributed to Omar Aden would be hearsay evidence which is inadmissible in evidence and cannot be the basis for a conviction.

In the event I hold that the trial court correctly applied the law in acquitting the respondent. The appeal by the D.P.P. is hereby dismissed.

C Appeal dismissed

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D

[zRPz]FIDELIS TINDWA v REPUBLIC 1985 TLR 130 (HC)

Court High Court of Tanzania - Mtwara

Judge Msumi J

April 6, 1985

MISCELLANEOUS CRIMINAL APPLICATION 4 OF 1985 E

Flynote

Criminal Practice and Procedure - Bail - Bail under the Economic and Organised Crime Control Act 1984 - Application for bail to the High Court not sitting as an Economic Crimes F Court - Economic and Organised Crime Control Act 1984, ss.29(4) and 35(1).

-Headnote

The applicant appeared before the District Court charged with cattle theft, an offence scheduled as an economic crime under the Economic and Organised Crime Control Act, G 1984. He applied to the High Court for bail. The application was made under s. 35(1) of the Act but the High Court was not sitting as an Economic Crimes Court.

Held: (i) Applications for bail under s.35(1) of the Economic and Organised Crime H Control Act, 1984 are entertainable by the High Court only when sitting as an Economic Crimes Court, and after the accused person has been arraigned in that court properly constituted;

(ii) the application in this case ought to have been filed under s.29(4) of the Act; I all the same the error committed here did not cause an embarrassment to the prosecution.

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MSUMI J

Case Information

Application allowed. A

No cases referred to.

L. Haule, for the applicant

Judgment

Msumi, J.: Applicant stands charged in the District Court of Songea B with one count of cattle theft contrary to sections 265 and 268(1) and (3) of the Penal Code. This is an economic offence as listed in the First Schedule of the Economic and Organised Crime Control Act No. 13 of 1984. The sanction of the Director of Public C Prosecution for the arraignment of the applicant before this court sitting as an Economic Crimes Court has not yet been obtained. The applicant is thus requesting to be released on bail pending the said sanction of the Director of Public Prosecution. But erroneously the learned defence counsel, Mr. Haule who prosecuted this application on D behalf of the applicant has filed the Chamber Application under section 35(1) of the Economic and Organised Crimes Act. With respect, this is wrong. Application for bail under section 35(1) is only entertainable by this court when sitting as an Economic Crimes Court. And the composition of such court is one High Court Judge plus two lay members. And secondly bail application under section 35(1) is sought after accused has E been arraigned in the economic court. The application ought to have been filed under section 29(4) of the Act. I am of the opinion, however, that this error did not cause any embarrassment to the prosecution. But the learned defence counsel is warned to take note to this exposition of the law for his future guidance. F

It has been deposed in the affidavit that applicant is a man with known place of abode and has some reliable persons who are ready and able to stand surety for him. And the applicant has been in remand custody since December last year. In the prevailing circumstances it is quite likely that it will take longer time before accused is committed G for trial before this court. The learned Senior State Attorney who appeared for the Republic had nothing to say either against or in support of the application. He said he had no communication from the police in Songea hence he is ignorant of the whole case.

From what has been deposed so far, I am certain that accused will appear in court for H his trial if he is released on bail. I am farther of the opinion that it is not for interest of justice that he should continue to be in incarceration. This application is therefore granted. Accused is granted bail on the following conditions. He should execute a bond of Shs. 50,000/= and produce two reliable sureties who will each sign a bond of Shs. I 50,000/=. Accused and his sureties to appear before the Resident

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Magistrate in charge Ruvuma for the execution of the bonds. A

Application allowed.

1985 TLR p132
B
[zRPz]MAAGWI KIMITO v GIBENO WEREMA 1985 TLR 132 (CA)

Court Court of Appeal of Tanzania - Mwanza
Judge Nyalali CJ, Mustafa CJ, Kisanga, JJA

Flynote
C Customary Law - Its status vis-a-vis other law - Section 9 Judicature and Application of Laws Ordinance, Cap. 453.
Customary Law - Kuria customary laws - Whether widow, sole heir of her deceased D husband's estate, is liable to pay the debts of her late husband.
Customary Law - Kuria customary law - Liability of a widow, sole heir, to refund bride price received by her deceased husband - Whether such liability extends beyond the assets which she actually received in the estate of her deceased husband. E
-Headnote
The appellant instituted a suit in a Primary Court for refund of thirty six head of cattle which he had paid in respect of his marriage to one Nyamohanga d/o Makongo which marriage was subsequently dissolved. The cattle were received by her brother. By the F time of the suit the brother had died, so that suit was filed against the respondent, widow and sole heir of the deceased estate in accordance with Kuria customary law. The appellant was successful in both the Primary and District Courts though the latter court reduced the number of refundable cattle from 36 to 20. On appeal to the High G Court both decisions of the two lower courts were overturned on the ground that the payment, receiving and refunding of bride price is a clan affair and should not be saddled on a poor widow. On further appeal the Court of Appeal of Tanzania considered the place of customary laws in Tanzania generally and the propriety of the High Court decision. H
Held: (i) The customary laws of this country now have the same status in our courts as any other law subject only to the Constitution and any statutory law that may provide to the contrary;
(ii) since under Kuria customs the respondent was the sole heir to her deceased I husband's property and nobody else, likewise she was
1985 TLR p133
NYALALI CJ
liable to pay the deceased's debts; A
(iii) an heir is liable to pay in full the debts which the deceased was liable to pay;
(iv) it is not only correct in law but proper in principle that the respondent, who is the sole heir of her deceased husband, be liable to refund the bride price which her B husband received in respect of the marriage of his sister to the appellant.
Case Information

Order accordingly.

Case referred to: C

1. Abdallah Kombe v Said s/o Leveri (1962) IX Digest of Appeals from Local Courts, p.11

Judgment

Nyalali, C.J. delivered the following considered judgment of the Court:- This case demonstrates how certain principles and rules of African customary law still operate in D what may be termed as the indigenous and majority African sector of the community in this country to the exclusion of principles and rules derived from English Law. The appellant Maagwi Kimito instituted a suit in the Primary Court at Nyanwigwa in Tarime district for refund of thirty six head of cattle which he had paid in respect of his marriage E to Nyamohanga d/o Makongo. The cattle were received by her brother, that is, one Werema s/o Makongo, who is the late husband of the respondent, namely Gibeno w/o Werema. The marriage between the Appellant and Nyamohanga d/o Werema was dissolved in court sometime in 1978, after the death of the respondent's husband. Under F the relevant customary law, the respondent became her husband's sole heir. So the appellant sued her in her capacity as such sole heir. He was successful in the trial Primary Court. The respondent appealed to the District Court at Tarime which upheld the decision of the Primary Court, though it reduced the number of refundable cattle from thirty six to twenty (20). She further appealed to the High Court at Mwanza which G overturned both decisions of the two courts below and gave judgment for the respondent. The appellant was aggrieved by the decision of the High Court hence this appeal to this court on a point of law certified under section 4(2)(c) of the Appellate Jurisdiction Act, 1979. In certifying the matter for appeal to this Court, Munyera, J. H stated, inter alia:

Under Kuria customs she was the sole heir to her deceased's husband's property and nobody else is allowed to inherit anything. Likewise she was liable to pay the deceased's I debts. But the learned appellate judge decided against this established Kuria

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NYALALI CJ

custom and ruled that the payment of the deceased's debts was a clan affair. The A applicant was not satisfied and seeks to appeal to C.A.T. I find that there is a question to be considered by the C.A.T. whether the respondent should be absolved from meeting the deceased's debts while she is the sole heir of the deceased's estate. I certify that the intended appeal raises a point of law.... B

In overturning the decisions of the two courts below, the High Court, Mfalila, J. stated:

The most important point is the question of the appellant's liability in her capacity as the wife of C the late Werema. The Primary Court as well as the District Court accepted the advice of the assessors that the appellant was rightly sued for the return of bride price for under Kuria customary law a widow is responsible for her husband's debts if she has taken over his D properties. I also agree for it only makes good sense. But this rule surely must be referring to the debts existing at the time of death. It cannot include unknown future events, i.e. refund of bride price. The payment, receiving, and refunding of bride price is a clan affair. Suppose there

was another sister in the late Werema's family and she was to get married, would the E family allow the appellant to collect the bride price simply because she took Werema's properties at his death? or would people like her brother-in-law (D.W.2) Werema's elder brother claim the booly? I cannot imagine the family allowing her to collect the bride price for F any of the daughters. If she has no right to receive the bride price for the daughters, why should she have the duty to refund the bride price of the divorced daughter? Those who would receive the bride price in Werema's place, should be the people to have the duty to refund the bride price in Werema's place. This poor widow should not be saddled with payment of family G debt.

Undoubtedly the Learned Judge expressed very strong views and sentiments on the issue but do these strong views and sentiments reflect the correct legal position on the H matter? Although it is apparent that the Learned Judge appreciated that this matter was governed by the customary law of the Kuria community to which the parties belong, it is not quite clear whether his views and sentiments were derived from or guided by Kuria customary law and practice.

It must be firmly stated at this juncture that customary law, where applicable, has the I same status in the courts of this country as any other

law. It is so stated under section 9 of the Judicature and Application of Laws A Ordinance, Chapter 453 of the Revised Laws which needs to be quoted hereunder in extenso:

(1) Customary law shall be applicable to, and courts shall exercise jurisdiction in accordance therewith in matters of a civil nature: B

(a) between members of a community in which rules of customary law relevant to the matter are established and accepted, or between a member of one community and a member of another community if the rules of customary law of both communities make C similar provision for the matter; or

(b) relating to any matter of status of, or succession to, a person who is or was a member of a community in which rules of customary law relevant to the matter are established and accepted; or D

(c) in any other case in which, by reason of the connection of any relevant issue with any customary right or obligation, it is appropriate that when defendant be treated as a E member of the community in which such right or obligation obtains and it is fitting and just that the matter be dealt with in accordance with customary law instead of the law that would otherwise be applicable; F

except in any case where it is apparent, from the nature of any relevant act or transaction, manner of life or business, that the matter is or was to be regulated otherwise than by customary law: G

Provided that:

(i) where, in accordance with paragraph (a), (b) or (c) of this subsection customary law is applicable to any matter, it shall not cease to be applicable on account of any act or H transaction designed to avoid, for an unjust purpose, the applicability of customary law; and

(ii) nothing in this subsection shall preclude any court from applying the rules of Islamic law in matters of marriage,divorce, guardianship, inheritance, waqf and similar I matters in relation to members of a community which follows that law.

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NYALALI CJ

(2) It is hereby declared for the avoidance of doubts that: A

(a) a person may become a member of such a community as is referred to in subsection (1), notwithstanding he was hitherto a member of some other community (and whether B or not any customary law is established or accepted in such other community), by his adoption of the way of life of the first-mentioned community as one of themselves, and such adoption or acceptance may have effect either generally or for particular purposes;

(b) a person may cease to be a member of a community by reason of his adoption of the C way of life of some other community (whether or not any customary law is established or accepted in such other community) as one of themselves, but shall not be treated as having ceased to be a member of a community solely by his absence therefrom. D

(3) In any proceedings where the law applicable is customary law, the court shall apply the customary law prevailing within the area of its local jurisdiction, or if there is more than one such law, the law applicable in the area in which the act, transaction or matter E occurred or arose, unless it is satisfied that customary law to be applied is some other law:

Provided that the court shall not apply any rule or practice of customary law which is F abolished, prohibited, punishable, declared unlawful or expressly or impliedly dis-applied or superseded by any Ordinance or Act of Tanzania or Act of the Common-services/Organization.

(3A) Notwithstanding the provisions of this Act the rules of customary law and the rules of G Islamic Law shall not apply in regard to any matter provided for in the Law of Marriage Act, 1971.

(4) For the avoidance of doubts it is hereby declared that the reference to an Ordinance or H Act of Tanzania in subsection (3) shall not include any law or practice (other than any such Ordinance or Act or Act of the Common Services Organization) applied to, or I enforceable in, Tanzania in accordance with the provisions of section 2 of the Indian

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Acts (Application) Ordinance, of subsection (1) of section 2 of the Land (Law of Property and A Conveyancing) Ordinance, or of subsection (2) of section 2 or section 7 of this Ordinance, or any English Act declared to be in force by order made under section 10 of the Land (Law of Property and Conveyancing) Ordinance.

When this appeal came before us for the first time, we called for additional evidence to B be taken on various pertinent points involved in the main issue as we were under the impression that the relevant customary law remained uncodified and undeclared. We were at the time unaware of the Customary Law Declaration, 1963 as well as The Local C Customary Law (Declaration (No.4) of 1963 which are contained in Government Notice No. 279 of 1963 and

Government Notice No. 436 of 1963 respectively. These customary law declarations or statements were made applicable to members of African Communities in the locality where the parties belong by Government Notice No. 604 of D 1963 and Government Notice No. 130 of 1964.

Obviously the rules dealing with refund of bride price and those dealing with inheritance are the ones that concern us here, since the suit is for recovery or refund of bride price and it was brought against the respondent in her capacity, not as a widow but as the sole E heir of the man to whom the bride price was paid. The relevant rule of the issue is Rule 37B of the First Schedule to the Local Customary Law (Declaration) Order, 1963 which states in Kiswahili:

Mtu anayeweza kudaiwa kurudisha mahari ni yule aliyepokea mahari au mrithi wake. F

Translated into English, it reads "the person liable to be sued for refund of bride price is either the person who received it or his heir". It must be pointed out that this rule is not G superseded by any provision of the Law of Marriage Act, 1971 or any other statute.

In the case before us, the respondent Gibeno w/o Warema is the sole heir of her husband who received the bride price in question. She was clearly liable under the rule to be sued as it was done by the appellant. However, an important point arises, and that H is whether her liability to refund the bride price extends beyond the assets which she actually received in the estate of her deceased husband. Under principles and rules derived from English Law an heir's liabilities are limited to the assets of the estate which heor she received from the deceased. I

What is the position under customary law?

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The relevant rules are found in the Second Schedule to the Local Customary Law A (Declaration)(No.4) Order, 1963. The relevant rules are reproduced in English translations by R.W. James and G.M. Fimbo in their book titled Customary Land Law of Tanzania, First Edition at page 166. These are rules 11, 12 and 13 and they read: B

11. If the intestate's property is not sufficient to pay the deceased's debts important debts will be paid first and the rest will be paid proportionately.

12. he rest of the debt is satisfied by the heirs from their own property.

13. Claims and debts are inheritable. C

It is clear from these rules, especially rule 12 that an heir is liable to pay in full the debts where the deceased's estate are insufficient to pay all the debts in full. It is clear from the provisions of rules 11, 12 and 13 that a three - stages procedure will be involved in D satisfying the liabilities. Firstly, payment in full is made in respect of important debts. Secondly, if the important debts are fully discharged from the assets, the remainder of the debts are paid out proportionately. Thirdly, in any event, the balance of the debts are paid out in full by the heirs from their own property. This position is undoubtedly E startling to anyone used to the English system. It happened to Spry, J. in the case of Abdallah Kombe v Said s/o Leveri in Local Court Civil Appeal No. 47 of 1962 reported in A Digest of Appeals from Local Court (1962) Vol.IX at page 11. He was dealing with a similar matter among members of the Wapare Community.

He stated: F

The assessors who sat with me expressed the opinion that under Pare customary law, an heir is liable for the debts of his predecessor even though he inherits no property; and that G such debts will pass from one generation to another .... Under the provisions of section 15 of the Local Courts Ordinance (Cap 299) the law to be applied is the customary law prevailing in the area, so far as it is not repugnant to natural justice or morality. The customary laws to which I have referred are certainly not repugnant to morality, indeed, I am much impressed by H the high sense of obligation which they reflect. I think, however that it is repugnant to justice that a person should be saddled with a debt which he has not himself incurred, the incurring of which he may not have approved and from which he had derived no benefit. I think it is I utterly wrong

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that a child may be born with a burden of debt which he may never be able to discharge. I hold A therefore, that this customary law is one which the Court will not enforce.

At the time of this decision by Spry, J. the Courts had power to disregard any customary law which was considered "repugnant to natural justice or morality". What that meant in B fact was any customary law which was incompatible with the prevailing English sense of justice or morality. Such power of the Court no longer exists by virtue of the provisions of section 9 of the Judicature and Application of Laws Ordinance. The customary laws of this country now have the same status in our courts as any other law, C subject only to the Constitution and any statutory law that may provide to the contrary. As James and Fimbo properly point out on page 173 of their book cited above, our codified customary law now constitutes the indigenous common law of the African communities concerned. D

The principle behind "the high sense of obligation" which much impressed Spry, J. in Abdalla Kombe's case is one which the people of indigenous African culture of this country (and perhaps elsewhere in Africa) have always had towards their predecessors. It is a principle which reflects their need to take care of the interests and reputations of E their predecessors, not only when the latter are disabled by old age and when in other cultures of the world such people are regarded only as a burden fit for old people's homes, but even long after their death. If, according to Spry, J., it is considered "repugnant to justice that a person should be saddled with a debt which he had not himself incurred, the incurring of which he may not have approved and from which he F had derived no benefit", why, one may ask, is it justified for a person to inherit a fortune from his predecessor for which he may have done absolutely nothing towards its acquisition?

What justification is there for the world wide practice by which governments incur national debts which are inherited by the next generation of their citizens? Surely, the G inheritability of debts under African customary law cannot be considered to be a human aberration. However, a person is not compelled to become an heir to a deceased. But once the person accepts to be an heir, the responsibility described above devolves upon that person. H

In the present case therefore, it is not only correct in law but proper in principle that the respondent, who is the sole heir of her deceased husband be liable to refund the bride price

which her husband received in respect of the marriage of his sister to the appellant. The trial Primary Court found that thirty six head of cattle were refundable, but the I District Court, on appeal, reduced the number to twenty, after making allowance for the
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NYALALI CJ
duration of the marriage in accordance with customary rules. We are bound to interfere A with the judgment of the High Court by allowing the appeal and setting it aside and restoring the judgment of the District Court.
B Order accordingly.
1985 TLR p140
C
[zRPz]RAMADHANI KAMBI MKINGA v RAMADHANI SAIDI 1985 TLR 140 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mapigano J

12 February, 1986
CIVIL APPEAL 17 OF 1985
Flynote
Land Law - Right of Occupancy - Land held under a right of occupancy - Land purchased D under dubious circumstances - Purchaser effects unexhausted improvements -Whether purchaser entitled to compensation for such unexhausted improvements.
-Headnote
The appellant is the owner of land held under a right of occupancy. While he was in E prison the respondent bought it for Shs. 4,000/=, did not effect necessary transfer to himself, built a house on the land and made other improvements. After his release from prison the appellant claimed back his land. The trial court decided in his favour but F ordered him to pay the respondent compensation for the unexhausted improvements effected on the land. The appellant appealed against the compensation order.
Held: (i) Where A knowingly or recklessly enters upon B's land in circumstances that G amount to a trespass and B promptly makes protests against his entry, A is not legally entitled to be paid any compensation by B for any of the improvements he might have effected on the land in the course of the trespass;
(ii) the respondent is not entitled to compensation for the unexhausted H improvements because he did not enter upon the appellant's land in good faith.
Case Information
Appeal allowed. I
Cases referred to:
1. Saidi Kirungura v Issa Khamisi [1973] L.R.T. n.28
1985 TLR p141

MAPIGANO J

2. Alli Mangosongo v Crispina Magenje [1977] L.R.T. n.18 A
3. Anna Benedict v Sefu Mrisho and Another [1977] L.R.T. n. 36
4. Hamisi Sinahela v Assan Mbele [1974] L.R.T. n.28

Mr. Rahim, for the appellant B

Judgment

Mapigano, J.: This is an appeal against the order that the learned resident magistrate made at the end of his judgment dated 8/12/83, requiring the appellant to make reasonable compensation to the respondent in respect of certain improvements that the respondent had carried out on the plot of the appellant. The C learned magistrate did not go further and assess and fix the quantum of the said compensation.

It was common ground that the appellant Ramadhani Kambi Mkinga was since July, 1977 the grantee of a right of occupancy in a parcel of land described by the land office as plot No. 475 Block 8, Mwananyamala B Area, Dar es Salaam, and held a certificate D of title bearing No. 135791, valid for a period of 33 years. He had sought and obtained a building permit from the City Council, but his desire to start constructing a dwelling-house on the plot met a drawback. On 10/10/77 he was convicted of an offence by the district court at Kisutu and was consequently sent to jail for a term of eight years. While he was serving the term he got wind of an unsettling rumour that the E respondent Ramadhani Said had entered upon the plot and occupied it. Naturally he was perturbed. According to him, he had not authorised any one to sell the plot. He wrote the land office to protest. As he came to find out on being discharged from prison on 10/2/83, the land office was not at all in the know about the respondent's purchase of F the plot. According to the records of the land office, the right of occupancy over the plot was still vested in the appellant. All that happened when he called at the land office to make enquiries is that he was required to pay the land rent and service charges that had fallen due.

However, the appellant's inspection of the plot had confirmed the rumour that had H filtered into the prison. He observed that the respondent had erected a building on the plot. The appellant instituted these proceedings in the court of Resident Magistrate at Kisutu upon the respondent's refusal to acknowledge that the appellant was still the owner of the suit-plot.

The respondent contested the action, claiming that he had purchased the plot for shs,4,000/= from DW.2 Hadija Sultani, the mother of the appellant. According to him, this Hadija and one Maulidi had approached him and disclosed to him that they were earnestly looking for someone to buy the plot for shs. 4,000/=. According to him, this I Maulidi had custody of the certificate of occupancy. According to him, he became interested

in the proposal and on or about 9/1/78 he agreed to buy and bought the plot at the price A proposed. He was then given the certificate of occupancy as well as the building permit, both documents showing that the right in the plot had been granted to Ramadhani Kambi Mkinga. According to him, when he questioned Hadija about these particulars, she replied to say that Ramadhani Kambi Mkinga was her son, that he was in prison and B that he had authorized her

to sell the plot. He said he was satisfied with her explanation and started constructing a house on the plot without bothering to check out with the appellant or to have the disposition approved by the land office.

Hadija was called by the respondent. She denied making any offer to the respondent in C respect of the plot. She also denied ever receiving any instruction from the appellant to sell the plot and holding herself out as having been authoritised to do so. Further, she denied having been a party to the purported sale. For reasons that were not recorded Maulidi was not called. D

The learned magistrate considered the evidence and held that the purported sale was invalid and that the appellant is still the holder of the right of occupancy over the plot. That decision was justified by the evidence and in actual fact no cross-appeal has been preferred from it, which is a strong indication that the respondent is satisfied with that E decision.

In effect the learned magistrate found that the appellant had never appointed either Hadija or Maulidi to be his agent to sell the plot and that if any of the two persons professed to contract on behalf of the appellant, she or he was actually practising false F pretences. The magistrate appears to have cleared Hadija and to have attributed blame to Maulidi. For myself, I would go further. I would say that the righteousness or bonafides of the respondent at the time of the transaction is also seriously questionable, considering in particular the fact that the matter of transfer of a right of occupancy in Dar G es Salaam is not a trifling affair. That plausibly explains two singular things: why the appellant made no efforts to ascertain Hadija's authority to act for the appellant and who for years he never bothered to secure the consent of the authorities to the transfer.

The magistrate next found that the respondent had wrongfully entered upon the plot, in H the language of the law, that he had committed a trespass. That finding cannot be faulted and again it is to be noted that no cross-appeal has been lodged by the respondent against it.

Then the magistrate proceeded to deal with the issue of reliefs and went into that matter in the following manner: I

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The defendant (respondent) was innocent for what he purchased turned out to be some one's A plot and made improvement on it. Is he entitled to any compensation for these improvements? The defendant had an apparent reason for making the improvements. The plaintiff should not benefit from them without compensation. Therefore it is ordered that the house in this suit plot be demolished and plaintiff compensates the defendant a reasonable B compensation for the improvements done on the plot.

I may pause to remark that it is difficult to follow the logic of this decision. The order of the learned magistrate seems to be self-contradictory. On one hand he ordered that the C house the respondent had constructed on the plot should be pulled down while on the other he required the appellant to pay compensation to the respondent for the benefits of the improvement that the respondent had effected on the land. I put the question: what benefits if the house was to be demolished? D

As pointed out at the outset, the appellant is dissatisfied with this part of the learned magistrate's judgment. Mr Rahim who advocated for the appellant submitted that the learned magistrate erred in awarding the respondent compensation, in view of the magistrate's earlier finding that the respondent was a trespasser. He referred this court E to the decision in Saidi Kaangura v Issa Khamisi, [1973] L.R.T. no.28. I will reflect on this decision, but let me first turn to the two decisions that the learned magistrate supposedly relied on.

The first is Alli Mangosongo v Chrispina Magenje, [1977] L.R.T. n. 18. In that case the appellant was permitted to till a piece of land of the respondent, but he was expressly F told not to grow permanent crops there. In due course the respondent disregarded the instruction and grew permanent crops. The appellant promptly protested, but the respondent reacted by laying claim to the land in question. When the matter came to appeal before the High Court, Kisanga, J. (as he then was) held that a person is entitled G to compensation for improvement effected on the land if at the time of carrying out such improvement he had apparent justification for doing so, for example; he said, where he bought and developed the land in good faith but it later transpires that the seller had in fact no title to such land which he could have passed to him. On the facts of that case H the learned judge took the view that the appellant had grown the permanent crops in bad faith and accordingly held that he was not entitled to any compensation in respect of those crops.

The second authority which the learned magistrate cited is Anna Benedict v Sefu Mrisho and Another, [1977] L.R.T. no. 36. There the right of occupancy in the plot in I dispute had been vested in the appellant.

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Subsequently a body of officials incompetently purported to re-allocate the right to the A respondent, upon which the respondent entered upon the land and started constructing a house thereon. The District Court of Morogoro held that the appellant was still the rightful holder of the right and granted him vacant possession of the house the respondent had built, on condition that he first should pay full compensation to the respondent. B Dissatisfied with the compensation order, the appellant took it to appeal, on the ground, inter alia, that since the respondent was a trespasser he was not entitled to any compensation. In the High Court the appeal came before the late Biron, J. who held that C the respondent was not strictly a trespasser as he had been misled into believing that he had lawfully acquired the right of occupancy over the plot. The learned judge was of the view that the case came four square within the principles which were applied by Mnzavas, J. (now elevated to JK) in Hamisi Sinahela v Assan Mbwele, [1974] L.R.T. n, 28: viz that a party should not reap the benefit of the improvement to the land effected D by the opposing party without paying for such benefit and compensating the opposite party for his expenditure in so improving the value of the land. Biron, J. went on to observe that that viewpoint finds bases in both the equitable doctrine of unjust enrichment and the legal principle laid down in section 72 of the Law of Contract E Ordinance. So Anna Benedict v Sefu Mrisho and Another was also a case of good faith.

Saidi Karungura v Issa Khamisi, on which the appellant relies, was dissimilar. There it was not in dispute that the appellant had trespassed upon the land of the respondent and proceeded to erect a house thereon. And what's more, the District Court found that F he had done so with full knowledge that the land was at the material time owned and occupied by the respondent. And what's even more, the court also found that the respondent had promptly protested against the appellant's entry and doings. In these premises the court held that the appellant was not entitled to any compensation for any G unexhausted improvement he might have made on the land. The decision was wholly affirmed by the late Mwakasendo, Ag. J. (as he then was) on appeal. It was a case of bad faith.

As demonstrated, one theme runs through all these cases and it is this: where A H knowingly or recklessly enters upon B's land in circumstances that amount to a trespass, and B promptly (i.e. at the earliest possible opportunity) makes protests against his entry, A is not legally entitled to be paid any compensation by B for any of the improvements he might have effected on the land in this course of the trespass

The instant case is, on balance, such a case. In my opinion this is not a case of the I respondent having entered on the land in good faith. By

his own admission, he knew, at the material time, that the person in whom the right of A occupancy over the plot was vested was undergoing imprisonment. If it is true that the mother of the appellant told him that she had been clothed with authority to transact for the appellant, which is in grave doubt and which story the learned magistrate disbelieved, he ought to have been wary and thoughtful enough to check out her story with the B appellant. It would not have been difficult to do so.

In any event there is a circumstance that argued against the award of compensation. The house in question is a wattle and daub structure and it is very much doubtful that it was constructed in accordance with the conditions of the right of occupancy and the building C rules of the City Council. Probability is that if the appellant leaves it to stand he may one day be called upon to pull it down.

In the final result I allow this appeal and set aside the trial magistrate's order awarding compensation to the respondent. The appellant will have his costs in both this court and in the lower court. D

Delivered to the parties.

Appeal allowed.

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E

[zRPz]YUSUFU MNTAMBO AND OTHERS v MOEZ ALIDINA 1985 TLR 145 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mapigano J

3 December, 1985
CIVIL APPEAL 9 OF 1985 F
Flynote
Civil Practice and Procedure - Appeal - Requirement that a memorandum of appeal be accompanied by a copy of the order appealed against - What amounts to a copy of the G order appealed against - 0.40 r. 2, 0.39 r. 1 and s.3 of the Civil Procedure Code.
-Headnote
Order 40 rule 2 read together with Order 39 rule 1 of the Civil Procedure Code provide H that in order for a memorandum of appeal to be competent it must be accompanied by a copy of the order appealed against. The Court considered what amounts to a copy of the order appealed against.
Held: An order is a separate entity which has to be abstracted from the ruling, supplied I and exhibited.
1985 TLR 146
MAPIGANO J
Case Information
Order accordingly. A
Cases referred to:

1. Kotak v Kooverji [1967] E.A. 348
2. Warsama and Mohamed v Ibrahim [1971] H.C.D. 78

M. Marando, for the appellants B
M. Raithatha, for the respondent.
Judgment
Mapigano, J.: The appellants are dissatisfied with the decision of the principal resident magistrate at Kisutu titled Ruling/order and dated 11/2/85, refusing C their application for temporary injunction, and have come to this court. Mr. Rainthatha representing the respondent has taken a preliminary point namely that the memorandum of appeal is incompetent in that it is not accompanied by a copy of the order appealed from as required by the provision of 0.40 r.2. C.P.C. (as read together D with 0.39 r. 1 C.P.C.) He has urged this court to strike out the appeal and cited the decision in Kotak's case [1967] E.A. 348 which he said is on all fours with the present appeal.
0.39 r.1 is framed in imperative terms. It imposes a mandatory and not a directory requirement that every memorandum of appeal must be accompanied by a copy of the E decree appealed from. 0.40 r.2 assimilates the provision of 0.39 r.1 and read mutatis mutandis it says that in the case of an appeal from an order the memorandum of appeal must be accompanied by a copy of the order appealed against. By section 3 C.P.C. order is the formal expression of the decision of the court. It is now settled by several F judicial pronouncements, too many to mention, that the attachment of a copy of the order appealed from is absolutely essential and that where the appellant has failed to comply with the provision of 0.40 r. 2 the appeal is not properly before the Court and must be dismissed. G

Responding, Mr. Marando counsel for the respondent submitted that the Ruling which is attached to the memorandum of appeal is essentially an order or incorporates the order appealed from and sufficiently meets the requirement of 0.40 r.2. He made reference to the decision of this Court in Warsama & Mohamed v Ibarahim [1971] H.C.D. 78. H

In the case just mentioned the appellant obtained an order from the trial court for vacant possession of their premises. They then duly commenced execution and had the Court Broker extract shs.1,972/= from the occupant, the respondent, who happened to be not the tenant. The respondent objected to the execution and it seems the issues were: I (a) whether the respondent was a statutory tenant; (b) whether the decree

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MAPIGANO J

passed against the respondent was enforceable against him; and (c) whether the sum of A shs.1,972/= paid to the Court Broker was refundable to the respondent. In its Ruling the trial court answered all these issues in the affirmative. On appeal to the High Court at Arusha against that decision, the respondent argued as a preliminary point, relying on Kotak's case, that the memorandum of appeal having been filled without a separate B copy of the order appealed from, the appeal was incompetent, notwithstanding that a copy of the Ruling was attached.

Kwikima Ag. J. was of the opinion that there was no need to draw a separate order, because, he stated, purporting to distinguish Kotak's case, the learned magistrate had C incorporated the order in his Ruling which stated at the bottom paragraph that "in the whole therefore, I rule that the objector is a statutory tenant of the suit premises and the decree passed against the judgment-debtor is not enforceable against him and that the payment of shs.1,972/= paid to the Court Broker as a result of the attachment levied by him should be refunded to the objector". D

With due respect to the learned acting judge, I fail to see on what material respects that case was distinguishable from Kotak's case. In actual fact it was also the appellant's argument in Kotak's case that the copy of the Ruling contained also a copy of the order and the late Hamlyn, J. implicitly accepted the respondent's contention that an order is a E separate entity which has to be abstracted from the Ruling, supplied and exhibited. I think the provision of 0.40 r. 2 is plain and clear. It contemplates a separate copy of the order appealed from.

I can hardly imagine a comprehensive Ruling that does not contain answers or decisions F on the points raised in an application, and as we know, the summary of those answers are often to be found at or towards the end of the Ruling and are the very stuff by which the order that has to be drawn is constituted. If therefore Mr. Marando's argument is valid then the provision of the rule under consideration will be rendered trifling if not G nugatory. I understand that procedural rules are intended to serve as the handmaidens of justice and not to defeat or frustrate it, and it cannot be denied that the strict application of the rule in question may in certain cases amount to a mere legal formalism. However, I do not feel that I have a mandate to disregard the omission to attach a separate copy of the order to the memorandum of appeal. H

In the event, the preliminary point is sustained and the appeal is dismissed. The respondent will have his costs in this court.

Delivered before the advocates.

I Order accordingly.

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A

[zRPz]JOHN SAPULI AND TWO OTHERS v RAJABU A. ATHUMANI MROPE AND THE ATTORNEY GENERAL 1985 TLR 148 (HC)

Court High Court of Tanzania - Mtwara

Judge Bwana, PRM - EJ

24 July, 1986

MISCELLANEOUS CIVIL CASE 1 OF 1985 B

Flynote

Election petition - Burden of Proof - Allegation that the victor is not a citizen of Tanzania - Burden of proving citizenship of victor.

Evidence - Burden of Proof - Citizenship challenged - The one challenging has the burden C of proof.

-Headnote

The petitioners, voters, were dissatisfied with the 1985 Parliamentary General Elections results in the Masasi Constituency. They challenged the election of the first respondent on the ground that he was not a citizen of Tanzania. The Court heard evidence on who the parents of the first respondent were and where they were born and also the birth D place of the second respondent.

Held: (i) The burden of proof of the citizenship of the first respondent lies with the petitioners to show that he is not a citizen of the United Republic as he claims; E

(ii) there is no evidence to show that the second respondent was not born in Tanzania.

Case Information

Petition dismissed. F

Case referred to:

1. In re Abdallah Salim Ali Ab-Salaam [1967] H.C.D. no. 1974

Kumwembe, for the Petitioners

Kaduri, for the Second Respondent G

Judgment

Dr. S.J. Bwana, P.R.M. - E.J.: In the 1985 Parliamentary General Elections in the Masasi Constituency, Rajabu Athumani Mrope emerged the victor, beating his opponent, Kate Sylvia Magdalene Kamba, the then incumbent Member of H Parliament.

Following the outcome of this election, three voters in the Constituency namely John Sapuli, Mathew Kannonyele and Stephen Rashid (hereinafter referred to as the Petitioners) filed a petition alleging that (as per paragraph 5(a) of their petition) Rajabu I Athumani Mrope (hereinafter referred to as the First Respondent) is not, and was not at all

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times material to the election, a citizen of the United Republic of Tanzania in terms of the A Citizenship Ordinance Cap. 452 by reason whereof he is not, and was not at all... qualified to be elected as a Constituency Member of Parliament... as per section 36 of the Elections Act, Number 1 of 1985.

In support of their allegations, they called five witnesses. They therefore asked this Court B to:

(a) declare that the election in Masasi Constituency is void;

(b) declare that the nomination of the First Respondent was invalid;

(c) declare that First Respondent's election as a Member of Parliament for the said C Constituency in October, 1985 elections is void;

(d) Costs of this Petition.

In other words, the only issue in this Petition is whether the First Respondent was at all material times a citizen of Tanzania. D

The three Petitioners namely John Sapuli, Mathew Kannonyele and Stephen Rashid testified before this Court as PW.1, PW.2 and PW.3 respectively. Common elements in their evidence are that:

1. They became suspicious of the citizenship of the First Respondent after reading his E personal particulars - Form 12 - which did not show in which village he was born and where he studied (Exh. P1).

2. During the election campaign in the district, each one of the Petitioners had intended to F question the First Respondent on that issue of where he was born but that each time they were not allowed to do so by the elections' supervisor, one Violet Bushiri. She told them to raise questions which were only in line with the election manifesto. G

3. After the election results were out and having learnt that First Respondent had won, they coincidentally met outside the Returning Officer's Offices at Masasi from where H they decided to follow up the issue. They were told by the same Returning Officer (R.O.), Vicent Awasi (2 RW.1) that he was powerless - the most they could do was to file a petition with the High Court - hence, this case.

Again, it is worth noting at this early stage that both PW.2 and PW.3 attended the I Special Annual District Conference of the Party, in

line with the provisions of section 40 (1) of Act No.1 of 1985. However, both of them A claim that they could not raise the question of citizenship of the First Respondent because the procedure was not followed particularly the one that allows delegates to question each aspirant after his or her particulars are read out. PW.2 and 3 show (and it is partly admitted by 2 RW.1) that because the conference started late, delegates B decided not to question any of the aspirants. Masasi Constituency had five aspirants and after the Returning Officer had read the personal particulars of each aspirant, there were shouts from the delegates .... "apite, apite, tumemwona". C

After the personal particulars were read out a secret poll was taken and First Respondent polled fourth. However, the National Executive Committee nominated him as one of the two candidates.

The other five PW's testified or attempted to show that First Respondent was not a citizen of Tanzania because his parents moved into Tanzania from Mozambique across Ruvuma river in 1947. At that time the First Respondent was already born although still D an infant being carried (although Mwenye Ndimila Saidi - PW.6 - shows that at the time the First Respondent was walking on his own, aged about 4 years).

Ali Masisa, PW.4 testified before this Court that he knows the First Respondent from the time his parents crossed from Mozambique and settled first at Mkongo village. He E knew the names of both parents of First Respondent. They crossed into Tanzania during the leadership of Mwenye (Village Elderman) Lenyago under Jumbe Ndimila, alias Abdulhman Saidi. PW.4 showed further in cross-examination that he saw the parents of First Respondent cross into Tanzania but could not tell where First Respondent nor his F parents were born. He states:

It is possible you were (meaning First Respondent) born in Tanzania and then went to Mozambique for a while and then returned. G

The same witness could not tell the First Respondent's parents' clan and could not name other people who crossed into Tanzania from Mozambique in the like manner. When cross-examined further by Mr. Mlewa, learned Counsel for the Second Respondent, PW.4 admitted first to have seen First Respondent's parents after they had crossed into H Tanzania - and were living in a neighbouring village. He said he was told of their coming by the one who ferried them across. He stated further:

It is likely that they went for a visit to Mozambique. I

Hamis Ismail Liuta, PW.5, told this Court that he was just told of

the coming of the First Respondent's family. He does not know the tribe nor the Mrope A clan. He does not know any of his (Mrope's) surviving relatives. He never saw the family cross the river. Mwenye Ndimila Saidi, PW.6, claimed to have been the Jumbe of the area incorporating Njisa and Mkongo - an area where the parents of First Responder settled. Their arrival was reported to him by Mwenye Linyago. He never B kept record of people moving into his area, although as a Jumbe, he was duty-bound to do so. PW.6 shows further that he could not tell where and when the First Respondent nor his parents were born. He cannot even recall these parents of First Respondent.

Saidi Hassani Mfaume, PW.7, schooled together with First Respondent at Makanya C Primary School but did not know First Respondent's parents.

Athumani Chingombe PW.8, is the only eye witness who claims to have seen the First Respondent's family cross into Tanzania from Mozambique. He even gave them fish to prepare a meal. PW.8 shows that the family was ferried across the river by one D Abdulkarim Chiwata, now deceased. At that time First Respondent was still an infant. He does not know where and

when the First Respondent or his parents were born "however it was in Mozambique" he alleges. He states further:

I can't tell if all people who cross into Tanzania from Mozambique are not Tanzanian Citizens. E

He named one Binti Mpapako alias Binti Ayuba as being the Maternal grand mother of the first Respondent. That name is claimed not to be know to the First Respondent, let alone his witnesses. F

In his defence, supported by four witnesses, the First Respondent (RW.1) supports the correctness of the contents of his Written Statement of Defence. He shows further that he is a citizen by birth having been born at Masuguri - Lipunguru settlement (later, after the villagilisation, to be called Nanderu) in Masasi district. His mother was born at the G same village while his father, the late Athumani Pilika, was born at Sindano - Pataula village in Masasi district. His parents moved to Makanya and later on to Njisa. Eventually in 1974 his mother moved to Mikangaula.

As far as the election irregularities are concerned, contrary to the claims by the PW.5, H R.W.1 shows that all the procedure was complied with and people were given chances to file with the Returning Officer any objections they had. They never did.

R.W. 1 shows that Fatu d/o Mkori his mother, is a Mngoni by tribe. Her mother is Zainabu Matola. R.W.1's father was a Mmakua. Zainabu Matola is still alive, and she I is Mngoni by tribe as well. Binti Mpapaku,

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a name alleged to be of R.W.1's grandmother, is disputed. He knows nobody by that A name.

Omari Saidi, R.W.2 is said to be an uncle of RW.3. He was already born when Fatu Mkori (RW.3) was born at Lipunguru Masuguri area. In cross-examination RW.2 stated that both parents of Zainabu Matola were Tanzanians. Her mother was Mngoni B from Songea and her father a Myao from Tunduru. He was present when the parents of RW.1 got married at Lipunguru. When RW.1 was born, the Jumbe of their area was Lita Mtira and not Mwenye Ndimila of Njisa (PW.6) because Lipunguru and Njisa belonged to different Jumbes at that time.

Fatu Mkori, R.W.3, is the mother of RW.1 She testified that her mother Zainabu Matola C (and not Binti Mpapaku) came from Songea. RW.1 was born at Lipunguru - Masuguri and went to school at Makanya. Athumani Ilika used to tell her that he came from Sindano - Pataula.

Sadiki Saidi, RW.4 testified that his parents and those of RW.3 lived together at Lipunguru - Masuguri after having shifted from Matogoro in Songea. He, together with D RW.3 grew up together at Lipunguru Masuguri and knew her mother.

Abdulhman Mtamba, RW.5 was a young brother of the late Piliko, the father of RW.1. They shared the mother but are from different fathers. When RW.1 was born at E Lipunguru - Masuguri, Piliku informed them and RW.5 went to see the new born baby.

Vincent Allan Awasi, 2 RW.1, was the Returning Officer. He showed that during the special District Party Conference, the procedure was not properly followed in the sense the delegates themselves decided not to question the aspirants after each one's personal F particulars were

read. According to him, he fulfilled his duties as a Returning Officer as provided for by the Law. He never received any complaints before the election or other irregularities especially on the issue of citizenship of First Respondent.

In their submissions, both Mr. Kaduri, Counsel for 2nd Respondent and Mr. G Kumbwembe, Counsel for the Petitioners raised similar allegations against the adverse party. These include inter alia:

1. The credibility of the evidence (and the witnesses themselves) of the adverse party. H

2. Both cited the case of In re Abdallah Salim Ali Ab-Salaam [1967] H.C.D No. 174 to support their cases.

On the part of Mr. Kumwembe - that the burden of proof of the citizenship of First I Respondent lies with him. Mr. Kaduri argued that the minimum requirement is one of the parents to be a citizen. Mr.

Kumwembe raised the issue of laxity on the part of the Party, the Government and their A respective machineries. This laxity, he claims, led to a failure to get proper and correct particulars of aspirants like the First Respondent in the present case.

Before proceeding further, I will deal with the issues raised in the submissions, starting B with the question of laxity on the part of the Party, the Government and their respective machineries. Party machineries which, according to the procedure provided for by the Law, which deal with the electoral process, are the Political Committee of the Party, the Electoral Conference, the National Executive Committee, the Central Committee, and others that C may be assigned special duties. Government organs, according to Mr. Kumwembe, include the State Security Machinery. The argument that there was laxity in all these machineries is not a subject matter at this stage and as the Elections Act shows under section 108: D

S.108 (1) The election of a candidate as a Member of Parliament shall not be questionable save on an election petition (emphasis mine).

But sub-section (2) of Section 108 precludes this Court from going deeper into that E argument. So whether or not there was laxity, this Court has no power to review or entertain such an argument - either by way of petition or otherwise.

Another argument raised in the submissions was on the issue of Citizenship as per Cap. F 512 amplified by the case of In re Abdallah Salim Ali Ab-Salaam [1967] H.C.D No. 174.

In that case, the Hon. P.T. Georges, C.J. (as then he was) stated inter alia:

The burden of proving Citizenship is on the applicant. G

Mr. Kumwembe argues that by virtue of that statement, the Petitioners in this case had a duty of just establishing that First Respondent is not a citizen. The burden of proof (beyond reasonable doubts) would then shift to the First Respondent. H

I differ with Mr. Kumwembe on this line of argument on the following grounds - First, the case of re Abdalla is remarkably different from the present one. In the former the applicant sought to establish his citizenship status. Therefore the duty was on him to do so. In the present case, the

First Respondent's citizenship status is being challenged. It I is therefore left to those challenging it, the Petitioners, to prove their case. Secondly,

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the fact that First Respondent's particulars were admitted by all the relevant election A organs as being correct, the duty to prove the contrary lies with the one having the contrary views - that is the Petitioners. Therefore the burden of proof of the Citizenship of First Respondent lies with the Petitioners - to show that he is not a citizen of the United Republic as he claims. B

Then there is the issue of credibility of the witnesses. I start with Mr. Kumwembe's arguments against the Respondent's witnesses. It would be proper at this juncture to remark that the learned Counsel for the Petitioners tended to base the credibility of the petitioners' witnesses on the ground that all of them, except one, PW.8, are literate - a C dangerous ground from which to base one's case. Truth or lies can be told by a literate as well as by an illiterate witness. What is basic, in establishing the credibility of a witness is the witnesses' knowledge of facts, intelligence, integrity, veracity, ejusdem generis. Literacy is an added advantage but not a conclusive one. D

One may argue further and include matters such as powers of recollection, memory and perception. Be that as it may, Mr. Kumwembe has requested this Court to disbelieve the Respondent's witnesses on the following grounds: E

RW.5 - was at the time of the birth of First Respondent too young to know the background of the parents of the First Respondent and that he was not closely related to Piliku.

RW.3 - should not be trusted because she cannot read and write and her evidence was not F straight forward especially regarding the number of children she had in such a short time of 14 years. That the number of children was not corroborated. Concerning her birth, only RW.2 was to testify. No attempts had been made to bring her mother Zainabu Matola to testify. The G Counsel also suspected the real names of that witness, hence the true relationship between the two.

RW.4 - is said to be a mere distant neighbour and gave contradictory statements concerning H his origin (Songea) and that of First Respondent's mother.

I had the opportunity of seeing all these witnesses and recording their evidence. On certain aspects I do agree with the learned Counsel that contradicting information was given - for example: On the question of how many children RW.3 had - 4, 5 or 9. I Eventually it was settled to be

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9. But I note as well that the confusion may have emerged from the interpretation A between Kingoni and Kiswahili. At one stage she may have understood how many children were alive (the number 5) or how many were born of the late Piliku (the number 4). But I find her to be a credible witness.

Likewise the other Respondent's witnesses, their being illiterate notwithstanding, I did B not dispute their evidence especially on the basic testimony of where First Respondent and his

parents were born. Other side issues, such as the educational background of the First Respondent, left much to be desired. But that was not the substantive issue before this Court. C
I now move to the issue of credibility on the part of the Petitioners' witnesses. The claims of Mr. Kaduri, for the Second Respondent, are not, strictly observing, related to the demeanour of the Petitioners witnesses but rather to the strength of their evidence in support of their Petition. This Court would agree with this line but to a certain extent. D Their evidence, of course, comes later for scrutiny when examining their case. However, in the case of recording evidence, the Court made note of PW.3's reluctance to establish in examination in chief as to when he met the other Petitioners so as to file their Petition. It was a crucial question - attempting to establish whether the Petitioners really wanted E to establish the Citizenship of First Respondent or were merely looking for ways to unseat him after the unexpected election results had occurred.
Again, the Court noted PW.6's attitude when being cross-examined by Kaduri, Counsel for the Second Respondent.
Be that as it may, the important point to note on this question of credibility of witnesses F on both sides is that at no stage the Petitioners succeeded in establishing a credibility gap on the fact of Respondent's witnesses on the place and time of birth of the First Respondent and that of his parents. The issues of the educational background of First G Respondents; the real names of RW.2; the number of children RW.3 had or the frontier nature of the Southern tribes, all are immaterial to the present case. Even if they were still they would not affect, to that extent, the crucial issue of the Citizenship of the First Respondent.
I now move to the crucial matter - the First Respondent-is he or was he at all material H times to the election a citizen of the United Republic of Tanzania?
Section 36 of the Election Act, No. 1 of 1985 simply refers the matter to Article 67 of the Constitution. The relevant portions of this Article are 67 (1) and 67 (2) (a). I
While aspiring to become a candidate, First Respondent filled in the following forms:
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1. Karatasi ya Uteuzi - Form No. 10 A
2. Tamko la Kisheria - Form No. 11 (Exh.D2)
3. Habari Binafsi - Form No.12 (Exh.P2)

In all these forms, First Respondent stated that he was a Citizen of the United Republic of Tanzania. B
In support of his case, First Respondent called four witnesses to show that he is a Citizen by birth, that both his parents were born in, and are Citizens of, Tanzania.
Fatu Mkori, RW.3, was born at Lipunguru - Masuguri. This is supported by Omari Saidi, RW.2, her uncle. Both testified that Fatu's grant parents originated from Songea C at a place (according to RW.4) called Matogoro. She grew up at Lipunguru - Masuguri, together with Sadiki Saidi, RW.4, whose parents had also originated from the same place, Matogoro in Songea. RW.4 was born earlier at Lipunguru Masuguri, so he knew RW.3 as she grew up at that village. This Lipunguru Masuguri later came to be D called Nanderu village.

The late Athuman Piliku, the father of First Respondent is said to have been born at Sindano Patakula. His only surviving brother, Abdulkarim Mtamba, RW.5, called this place Mwiti - Patakula. The change of name - Sindano or Mwiti - was raised by Mr. E Kumwembe only in his final submissions. He never cross-examined RW.5 on that point.

RW.2 stated further that Zainabu Matola's father was Myao from Tunduru and her mother was Mngoni from Songea. He was present when RW.3 married the father of First Respondent. The wedding took place at Lipunguru Masuguri. F

Both RW.2 and RW.5 testified that when First Respondent was born, they were informed. RW.2 shows First Respondent was born at Lipunguru during the "jumbehood" of one Lita Mtira - a traditional way of recording event, I believe. RW.5, stated that Piliku came to give notice of the birth of First Respondent and he G accompanied him to Lipunguru to see the child. RW.5 notes the place where Piliku and RW.5's other grand parents were born and lived at Patakula and because they are buried there. Patakula is in Tanzania.

In their allegations the Petitioners attempted to prove to the contrary. PWs 1 to 3 had H mere suspicions. The other witnesses would therefore be the relevant ones in their attempt to prove their claims.

As shown earlier in this judgment, Ali Masisa, PW.4, stated that he knew First Respondent after his parents had crossed into Tanzania and lived in a neighbouring village; He lived at Mkonona village. He however admitted that he did not know where I First Respondent was born. "It is

likely that they went for a visit to Mozambique for a while and then returned". It is the A view of this Court that this witness does not have clear information as to where First Respondent nor his parents were born.

Likewise Hamisi Ismail Liuta, PW.5 was just told of guests from Mozambique. He never witnessed their coming. In fact when he came to Makanya, "I found his parents B had built a boma at Mkongo before they could build a permanent residence" - he stated. He admitted as not knowing the tribe or clan of First Respondent's father nor does he know where both parents were born. His evidence is also not conclusive in trying to establish the allegations before this Court.

Mwenye Ndimila Saidi, PW.6 a jumbe, admitted just to have been told of the coming of C First Respondent's parents by Menye Linyago. He said he visited them and saw First Respondent walking around, being a child of about 4 years. This piece of evidence contradicts all the others who claim to have seen the First Respondent as an infant, being D carried at the back of her mother. He could not tell where the parents of the First Respondent were born. Indeed this piece of evidence cannot be taken as conclusive proof or even corroborating the first two above. The most it can do is to contradict them. The credibility of this witness has already been discussed above. E

Saidi Hassan Mfaume, PW.7, merely went to school with First Respondent therefore his evidence is not relevant to the present issue.

Athumani Chingombe, PW.8, as stated earlier, is the only eye witness who may have seen the parents of First Respondent cross into Tanzania from Mozambique and settling temporarily at Mkongo. He could recall him later only after being introduced by Maalim Twalib Nyama. F
I had serious problems in trying to believe the evidence of this witness, especially after he had admitted in Court to have been "approached" by Stephen Rashid, PW.3, to come and testify on this issue. My doubts are centred on: G

1. He cannot tell or remember other similar immigrants who crossed into Tanzania.
2. He heard the family of First Respondent shout for help from across that part of a wide river.
3. At the same time he admits not to know where First Respondent and his parents were H born. He merely alleges "but it was in Mozambique". No further support is given. Admittedly he adds, "not all people who cross from Mozambique are not Tanzanian Citizens: It is therefore not sufficient proof to disqualify the citizenship of a person by relying on such general allegations. I

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In view of the above PWs' evidence, it is not established beyond doubts as to where the A First Respondent and his parents were born. It is not enough merely to allege that they came from Mozambique. It should have been shown where in Mozambique. What is clearly shown all PWs 4 and 8 is that they do not know where First Respondent and his parents were born. B
On the other hand, I am convinced beyond doubts that the Respondent's witnesses have established beyond the blue skies (even though the burden is not on their side) that First Respondent is and was born in Tanzania. So were his parents. Therefore he is a citizen of Tanzania by birth. In consequence thereof and in accordance with the provisions of C section 113 of the Election Act No. 1 of 1985, I do declare that the election in Masasi Constituency in the Parliamentary Elections of October, 1985 was proper. I declare further that the nomination, election and declaration of First Respondent, Rajabu Athumani Mrope, was legally valid. Therefore I dismiss this Petition in its entirety with Costs. D
Petition dismissed.

1985 TLR p158

E

[zRPz]SAMSON KAYORA AND LEONARD MSIMBA v REPUBLIC 1985 TLR 158 (HC)

Court High Court of Tanzania - Tabora
Judge Maina J

April 23, 1986
CRIMINAL APPEALS 101 & 108 OF 1985 F
Flynote
Criminal Law - Exporting restricted goods - Definition of "export" - Section 2 East African Customs and Transfer Tax Management Act (44 of 1967).

Criminal Law - Exporting restricted goods - Whether restricted goods may include goods G not specifically declared to be restricted.
Criminal Practice and Procedure - Pleas - Plea of guilty to an offence not properly disclosed in the charge and by the facts - Whether unequivocal.
Criminal Practice and Procedure - Charges - Charge and statement of facts not disclosing H the offence alleged - Whether proper.
-Headnote
The first appellant was convicted on his own plea of guilty to a charge of exporting restricted goods to Burundi c/ss 146(c) and 155(a) of the East
African Customs and Transfer Tax Management Act, 44 of 1967. He was sentenced I to a fine of Shs.3000/= and the goods and the vehicle,
1985 TLR p159
MAINA J
which belonged to the second appellant and in which the goods were being carried, A were ordered to be forfeited. The particulars of the charge alleged that the first appellant was found in Kasulu District exporting maize flour, beans and maize, all of them in modest quantities, to Burundi. To that charge the appellant replied: "It is true I exported B the crops to Burundi from Tanzania without a permit." No law was cited under which the said goods were declared to be restricted goods.
Held: (i) "Export" means to take or cause to be taken out of the country. Since the first appellant was found and arrested with the goods in Tanzania, he cannot be said to have C exported the goods to Burundi from Tanzania;

(ii) it is necessary for the prosecution to establish that the goods in question are lawfully declared "restricted goods." As the charge and the facts did not disclose this, the conviction cannot be upheld;

(iii) although the appellant purported to plead guilty to the offence of exporting D goods to Burundi, the charge and the facts as given by the prosecution were not consistent with that plea.

Case Information
Appeal allowed.
No cases referred to. E
Kwikima, for the appellants
Mussa and Nyabiri, for the respondent.
Judgment
Maina, J.: These two appeals are consolidated. The first appellant F Samson Kayora was charged with, and convicted of, exporting restricted goods contrary to section 146(c) and 155(a) of the East African Customs Management Act. He was sentenced to a fine of Shs.3,000/= or twelve months imprisonment in default. The vehicle in which the goods were being carried was forfeited to the Government. G The second appellant, Leonard Msimba, is the registered owner of the motor vehicle, and he is appealing against the order of forfeiture.

The first appellant was jointly charged with twenty-six others. He was the fourteenth accused in the charge sheet. The particulars of the charge allege, inter alia, that the H appellant was found at Migongo village, Kasulu district, exporting to Burundi restricted goods, to wit, three tins of maize flour, two tins of beans and one quarter of a tin of maize. When the charge was read over to the appellant he is recorded as saying "It is true I exported the crops to Burundi from Tanzania without a permit." The prosecutor I then outlined the facts. In so far as the first appellant is concerned, the facts allege that at the time of his arrest the appellant

"used his motor vehicle Reg. No. UJ 945 to export the crops". The appellant is A recorded as admitting the facts as correct. He was accordingly convicted on his own plea of guilty and sentenced as above. The orders of forfeiture of the goods and the motor vehicle were then made.

Mr. Kwikima, learned counsel for the appellants, submitted first of all, that the plea by the first appellant was equivocal. He said that the first appellant could not have pleaded B guilty to the offence in all its ingredients. Learned Counsel further said that the goods found with the first appellant were of small quantities and some are perishable so that they were not for export. Mr Kwikima added that there was no Government Notice brought to the attention of the Court to show that those goods were restricted goods. C Finally, he said that the first appellant was found in Migongo village in Kasulu district within Tanzania and so he could not have said that he exported the goods. Mr. Mussa learned State Attorney conceded and said that the Republic did not support the conviction.

I think there is force in what Mr. Kwikima has said. The first appellant could not have D told the court that he exported the goods to Burundi while the particulars of the offence and the facts given by the prosecutor clearly show that the first appellant was arrested in Migongo village within Kasulu district in Tanzania, with those goods. The plea is inconsistent with the facts. Since the first appellant, like the other accused who were E jointly charged with him, was arrested in Tanzania with those goods, I do not see how he could be said to have exported the goods "to Burundi from Tanzania". He could not possibly have said that he exported them to Burundi.

Section 2 of the E.A. Customs and Transfer Tax Management Act gives the following F definition of the term "export":

> export with its grammatical variations and cognate expressions means to take or cause to be taken out of the Partner States. G

For the purpose of the Act, it is provided in section 2(2)(c) that "in the case of goods exported overland, the time of exportation shall be deemed to be the time at which such goods pass across the boundaries of the Partner States". When the first appellant was arrested on 13.10.1985 at 5.00 a.m., he had not taken those goods out of the country. H In the circumstances, the first appellant's conviction cannot stand.

I may also add for the benefit of the learned trial magistrate that since the charge and the facts did not disclose under which legislation, principal or subsidiary, those goods were declared to be "restricted goods" for the purpose of the Act, the first appellant's conviction cannot be I

sustained. It was necessary for the prosecution to establish that the goods were A declared restricted goods.
As regards the second appellant, I agree with Mr. Kwikima that the forfeiture of the motor vehicle cannot stand. Since the first appellant's conviction cannot be sustained, it follows that the sentence and order of forfeiture must be set aside. It is noted that the B order of forfeiture was made even without giving an opportunity to the owner of the motor vehicle to oppose the order. However, since the conviction is not sustained, I do not wish to consider that aspect of the case.
These appeals are allowed. The conviction of the first appellant is quashed and the C sentence and order of forfeiture are set aside. If the first appellant has paid the fine, it should be refunded to him in full.
For the avoidance of doubt, the second appellant's motor vehicle Reg. No. UJ945 should be returned to him.
In exercise of revisional jurisdiction, I quash the convictions of the twenty-six accused D persons who were jointly charged with the first appellant, as the pleas and facts were similar. The sentences and order of forfeiture of their properties are set aside. The fines, if paid, should be refunded to them in full.
E Appeal allowed.
1985 TLR p161
F
[zRPz]M/S KANYARWE BUILDING CONTRACTOR v THE ATTORNEY GENERAL AND ANOTHER 1985 TLR 161 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

31 July 1986
CIVIL CASE 18 OF 1985 G
Flynote
Contract - Frustration - When doctrine of frustration may be invoked.
Contract - Repudiation - Circumstances under which a partymay be said to have repudiated a contract.
Contract - Damages - Remoteness - Installation of water tank where water was scarce to H facilitate performance of the contract - Contract terminated - Whether damages in respect of construction of the water tank recoverable.
-Headnote
The plaintiff sued the first defendant and the Regional Engineer of Works, Kagera I Region (2nd Defendant) for damages for breach of contract.

The plaintiffs were awarded two contracts. The first was to build T.P.D.F. staff A residential quarters at Biharamulo and the second to construct a T.P.D.F. office block and repairing some 19 residential quarters at Rwamishenye.

In April 1983 one of the directors of the plaintiff was detained as an economic saboteur and some building materials and two tipper lorries of the plaintiff were confiscated. In B addition the plaintiff's bank account was stopped. The plaintiffs informed the second defendant by a letter about these developments whereupon the latter ordered the former to stop continuing with the projects on the grounds of either frustration or repudiation of the contract by the plaintiffs. By the time they were stopped the plaintiffs had performed C a substantial part of the contract for part of which they were not paid.

It was argued in favour of the defendants that the letter of the plaintiff to them showed that the plaintiff had repudiated the contract or that the contract was frustrated because of the developments that took place. D

Held: (i) The doctrine of frustration may be invoked where events occur that make the performance of the contract impossible and these frustrating events are not the fault of either party; E

(ii) the facts that one of the directors of the plaintiff company was detained, the company's bank account was stopped from operation and some company's building materials had been confiscated could not ground the invocation of the doctrine of frustration because these developments did not make it impossible for the plaintiff company to continue with the contracts; F

(iii) the plaintiff company did not repudiate the contracts because they did not either expressly or impliedly intimate that they would not honour their side of the bargain;

(iv) the building of a water tank, because of the scarcity of water at Biharamulo G was a matter which the defendant knew or as a reasonable man ought to have known as likely to happen and therefore damages claimed were not remote.

Case Information

Judgment for the plaintiff H

Cases referred to:

1. Twentsche Overseas Trading Co. Ltd. v Uganda Sugar Factory, Ltd. [1945] 12 E.A.C.A. 1 (P.C.)
2. Alibhai Gulam v Mohamed Yusuf [1946] 13 E.A.C.A. 25 (k)
3. Fibrosa v Fairbairns Lauson Combe Barbous Ltd. [1943] A.C. 32. I

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4. Howard & Co. (Africa) Ltd. v Burton [1964] E.A. 540 (C.A.) A
5. Isakiroglou & Co. Ltd. v Noblee Thorl [1962] A.C. 93.
6. Maclaine Watson & Co. Ltd. v Kanji Meghji Shah [1956] 23 E.A.C.A. 366.
7. Rashid Moledina & Co. (Mombasa) Ltd. v Hoima Ginners Ltd. [1967] E.A. 645 (C.A.) B
8. Hadley v Baxendale [1854]9 Exch. 341

9. Woodruff v Dupont [1964] E.A. 404

10. Suisse Atlantique Societe d'Armament Maritime S.A. v N.V. Rotterdamsche Kolen Contrale [1966] 2 W.L.R. 944.

Kahangwa, for the plaintiff. C

Swai, State attorney, for the respondents.

Judgment

Mwalusanya, J: The plaintiff M/S Kanyarwe Building Contractors Ltd. D is suing the two defendants namely the Attorney General (1st Defendant) and the Regional Engineer of Works, Kagera Region (2nd Defendant) for damages for breach of contract. He is claiming a total sum of shs. 3,250,111/= as damages. Both defendants have denied that they were in breach of the contract in question and prayed that the suit be dismissed with costs. E

In view of the pleadings, the first issue that was framed was as to whether the contract was lawfully terminated by the defendants in August 1983. In other words were the defendants entitled in law to read the plaintiff's behaviour as anticipatory breach as to F release them from further obligations? And that leads me to briefly summarise the evidence on the matter. It is common ground that the plaintiff company entered into contracts with the 2nd defendant on 20/1/1983. The first contract for a sum of shs. 9,193,100/= was for the plaintiff company to build T.P.D.F. staff residential quarters, consisting of four big blocks and four small units at Biharamulo. And the second G contract for Shs. 1,426,100/= was for the plaintiff company to construct a T.P.D.F. office block and repairing some 19 residential quarters at Rwamishenye in Bukoba District. According to the terms of the two contracts Exh. A1 and Exh. A2, both projects were to be completed within 20 months effective from 20/1/1983; which means H they were to be completed by 20/8/1984. The plaintiff did not complete the contracts as it was terminated by 2nd defendant in August 1983 on the ground that plaintiff had repudiated the contracts or that the contracts were at an end due to the doctrine of frustration.

The circumstances which led the 2nd defendant to terminate the two contracts were as I follows. The plaintiff company proceeded with its part of the contract until 9/4/1983 when one of the directors of the plaintiff

company Mr. Haji Yusuf Amir (P.W.1) was detained as an economic saboteur under A the Economic Sabotage (Special Provisions) Acts No. 9 and 10 of 1983. By then a great part of the contracts had been executed. This is evidenced by the uncontroverted evidence to the effect that by 5/4/1983 at Rwamishenye Project some 50% of the work had been done and the plaintiff was duly paid by the 2nd defendant for that work; and B for the Biharamulo Project by 19/2/1983 some 6% of the work had been executed and the plaintiff company was duly paid Shs.587,846/40 for that work done. According to the testimony of PW.1 when he started to execute the contract on 20/1/83 he had bought a lot of building materials for the two projects and these included cement, bricks, C stones, timbers and nails etc. He also said that the plaintiff company had two tipper lorries for the projects. Not that after the detention of PW.1 work on the projects was at a stand still, because the other director of the plaintiff company Mr.

Haji Alli Kakurwa continued with the work. In any case at both projects the actual construction of the D buildings was assigned to sub-contractors. At Biharamulo there was a sub-contractor named Alfred s/o Isack (PW.2) who continued with the job until he was stopped in August 1983 by the 2nd defendant. And at Rwamishenye the sub-contractor was one Wilfred s/o Kazimoto (PW.4) who testified that he continued the construction with his labourers until he was stopped in August 1983. And according to the storekeeper of the E plaintiff company Mr. Lobenti s/o Mshahili (PW.3) he was in August 1983 chased away from both building sites without being allowed to take away the building materials of his employer.

The 2nd defendant does not dispute the fact that it was he who had ordered the F plaintiff's sub-contractors to stop work in August 1983. He said that he was justified to do so as the plaintiff had repudiated the contract or else the contract was at an end due to frustration as disclosed in the plaintiff's letter dated 20/8/1983 which was accepted as Exh. B at the trial. The letter is written in Kiswahili and when freely translated into G English it reads:

That I would like to inform you that Mr. Haji Yusuf Amir one of our directors of our company has been arrested and detained as an economic saboteur under the Economic Sabotage (Special H Provisions) Act of 1983. Among the property of our company that has been taken by the government on suspicion that it belongs to the detained director are: Corrugated iron sheets, cement, nails, paints and several other minor building materials. Besides being deprived of those essential items for our two building projects, the bank account of our company has I been stopped from operation

by the government such that we can't withdrawal our Shs.507,111/45 lying in the bank so that A we use it in our projects. Moreover it should be noted that costs keep on rising considerably whenever any delay is made in executing the contracts. And mind you the company has to pay the sub-contractors and its employees who carry on the work at the two B projects. This company is willing and capable if the government will open the company's Bank Account; and if the company is given back its building materials confiscated and for which we are ready to produce cash sale receipts to establish that it is company property and not personal property of the detained director. As we do not know when the detained company C director will have his case disposed of, we fear that there might be a delay in finishing our part of the contract. So we pray that our company's bank account be immediately opened and the company's building materials as well as vehicles used in the construction business be released please. D

The letter was written to the Regional Tender Board which had awarded the two contracts to the plaintiff company and was inter alia copied to the 2nd defendant. And according to the 2nd defendant Peter s/o Kajuna, in July 1983 he once visited both E building sites and found that work had stopped or as he said no work was in progress at the sites. So he testified that when he received the letter quoted above and his own observations at the site in July 1983, he came to the conclusion that the plaintiff company had repudiated the contract or else the contract was at

an end due to the doctrine of F frustration. So he advertised another tender for a new building contractor.

Let me first deal with the issue as to whether on the facts of this case there was a 'frustration of the contract'. It was argued by the defendants that because one of the directors of the plaintiff had been detained and the company's building materials had G been confiscated, then the contract was at an end due to the doctrine of frustration. The doctrine of frustration states that where events occur that make the performance of the contract impossible and these frustrating events are not the fault of either party then the contract is brought to an end with neither party at fault. That doctrine is contained in s. H 56 (2) of the Tanganyika Contract Act, Cap, 433 which states:

A contract to do an act which after the contract is made becomes impossible, becomes void when the act becomes impossible. I

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MWALUSANYA J

At the outset let me point out that our courts do not readily invoke the doctrine of A frustration unless it is shown that the contract as originally conceived, bears little or no resemblance to the new state of things. It is not sufficient merely to show that conditions have changed so that one party is in a more onerous position, financially or personally. It should be shown that it is now impossible to perform the contract not merely more B difficult or expensive. In Twentsche Overseas Co. Ltd v Uganda Sugar Factory Ltd. (1945) 12 E.A.C.A. -1 (P.C.) Lord Wright of the Privy Council had expressed the matter in much more eloquent terms when he said: C

It (frustration) is a sort of shorthand: it means that a contract has ceased to bind the parties because the common basis on which by mutual understanding it was based has failed. It would be more accurate to say, not that the contract has been frustrated, but that there has been a failure of what in the contemplation of both parties would be the essential condition or D purpose of the performance.

Then in Alibhai Gulam v Mohamed Yusuf (1946) 13 E.A.C.A. 25 (K) Sir Joseph Sheridan C.J. cited with approval the passage of Viscount Simon L.C. in Febrosa v Fairbairns Lauson Combe Barbour Ltd. [1943] A.C. at p. 40 where in referring to E frustration he said:

The principle is that where supervening events, not due to the default of either party, render the performance of a contract indefinitely impossible and there is no undertaking to be bound in F any event, frustration ensues.

I have underlined the phrase 'indefinitely impossible' for emphasis. Then we have Sir Samuel Quashie - Idun P. who expressed the doctrine in much more telling terms in the case of Howard & Co. (Africa) Ltd. v Burton [1964] E.A. 540 (C.A.) (K.) where G after citing with approval the decision of the House of Lords in Isakiroglou & Co. Ltd. v Noblee Thorl [1962] A.C. 93 he stated that:

The fact that it has become more onerous or more expensive for one party than he thought is H not sufficient to bring about a frustration. It must be more than merely more onerous or more expensive. It must be positively unjust to hold the parties bound. It is often

difficult to draw the line. But it must be done. And it is for the courts to do it as matter of law. I

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MWALUSANYA J

With those few examples articulating what circumstances amount to frustration, I think A now it is crystal clear that the doctrine was wrongly invoked by the 2nd defendant. With the factors that plaintiff company had disclosed in his letter the execution of the contract would have been more onerous but not impossible. A much more close example is the B Kenyan case of Maclaine Watson & Co. Ltd. v Kanji Meghji Shahs (1956) 23 E.A.C.A. 366. That was a contract for selling rice. The government refused to issue an import licence for rice. With the ban it became very expensive to execute the contract. The buyer argued that the contract was frustrated but the court thought not even though it agreed that it had become more expensive to execute it. C

There is also a further ground supporting a view that there was no frustration. The plaintiff is a corporate body with a certificate of incorporation No. 10191. So it is a separate legal entity quite distinct from its members. And as a company works through D its members and employees, then the detention of a member or director, would not deter the company to continue to work through its other members and directors. I am therefore not persuaded that the 2nd defendant was entitled to invoke the doctrine of frustration.

Next let me now consider the second point as to whether the plaintiff company had at E any time repudiated the contract. Repudiation occurs where one party either expressly or impliedly intimates that he will not honour his side of the bargain. This happens before the end of the contract period. The doctrine is contained in s. 39 of the Tanganyika Law of Contract Act, Cap. 433 which provides: F

> When a party to a contract has refused to perform or disabled himself from performing his promise in its entirety, the promisee may put an end to the contract, unless he has signified, by words or conduct, his acquiescence in its continuance. G

The test for repudiation where there has been no expressed intention to repudiate, is: was the conduct such as to have caused a reasonable person to come to the conclusion that the person did not intend to or was unable to fulfil his contract? A clear example is demonstrated by the case of Rashid Moledina & Co. (Mombasa) Ltd. V. Hoima H Ginners Ltd. [1967] E.A. 645 (C.A.)(K). In that case X contracted to sell coffee to Y. X was in short supply and unsuccessfully tried to come to some agreement with Y. X failed to deliver to other parties and Y, knowing of this failure claimed it amounted to repudiation. It was held by Court that X's behaviour could be treated by Y as I repudiation. In the words of Duffus J.A.:

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MWALUSANYA J

> The test must be whether ... the conduct of the respondent through its representatives was A such as to have caused a reasonable person to come to the conclusion that the company did not intend to or was unable to fulfil its contracts.

Applying that test to the facts of this case, I am unable to agree that the plaintiff company B had repudiated the contract either expressly or by conduct. The letter that I quoted above does not in so many words state that the plaintiff company would not go on with the contract but it states simply that they would find it more difficult to perform or rather that there may be a delay in completion of the same. After all the director was detained C on 9/4/1983 and some building materials confiscated on the same day, and yet construction at both projects continued in full swing until the sub-contractors were stopped in August 1983. I don't agree with the testimony of the 2nd defendant that in July 1983 work at both building sites had come to a stand still. On the whole no D reasonable person could, on reading the letter Exh. BI, have come to the conclusion that the plaintiff company intended or was unable to fulfil its part of the contract. The 2nd defendant was wrong to have had reached that conclusion.

In any case even if 2nd defendant had reached the conclusion that the plaintiff had E repudiated the contract yet as correctly submitted by plaintiff's counsel Mr. Kahangwa, the 2nd defendant was precluded from making preemptory determination of the contracts as it was contrary to the agreed stipulations contained in the General Conditions of Contracts and both contracts Exh. AI and Exh. A2 clearly provide that the F two contracts are subject to the General Conditions of the Contract. Now clause 32 of those General Conditions of the Contract provides:

32. Determination of Contract by Employer. G

(a) Default: If the Contractor shall make default in any of the following respects, viz:

(i) If without reasonable cause he wholly suspend the works before completion;

(ii) If he fails to proceed with the works with reasonable diligence; H

and if he shall continue such default for fourteen days after a notice by registered post, specifying the default has been given to him by the Principal Secretary (works), the Employer I may without prejudice to any other rights or remedies, thereupon by notice by

registered post determine the employment of the Contractor under this Contract: A

Provided that notice in pursuance of this clause shall not be given unreasonably or vexatiously. B

Those conditions clearly provide that in case of default the employer has to write a notice by registered post to the contractor informing him the particulars of the default. And if within 14 days after the first notice the contractor says that he is unable to continue with the contract or the default that was pointed out persists then the employer C may determine the contract and this has to be done by registed post. However none of that procedure was followed by the 2nd defendant. The 2nd defendant acted unreasonably in determining the contract without notice to the contractor. The notice would have put him in the clear picture if the contractor was willing and capable of going D on with the contract despite the temporary drawbacks that had cropped up. In the event then I hold that there was no repudiation of the contract by the

plaintiff company. It was the 2nd defendant who was in breach of the contract and so liable in damages. So issue No. 1 is answered in favour of the plaintiff company.

For the moment we skip issue No. 2 and proceed to issue No. 3. Now issue No. 3 E concerns compensation payable to the plaintiff company for the work done and not paid for, up to the time the contract was put to an end by the defendants. The defendants conceded at the commencement of the trial that they were liable for not more than F shs.179,840/40 for the work done at Biharamulo Project but that they were not liable for any work done at Rwamishenye Project. However evidence was brought by the plaintiff company concerning the work done at both projects and that evidence was given by PW.2, PW.2, PW.3 and PW.4. There was unchallenged evidence adduced for the Biharamulo Project indicating that the buildings under construction had all G reached four feet high at the time of the determination of the contract and this is about 20% of the contract sum of shs.9,193,100/= and that comes to Shs. 1,838,620/= and less Shs. 587,846/40 paid out to the plaintiff on 19/2/1983 there remains Shs. 1,238,620/= which plaintiff company now claims. I can see no valid reasons as to why H the defendants concede to pay Shs.179,840/40 only for the Biharamulo Project and not the full sum of shs 1,238,620/=. It is my finding that shs. 1,238,620/= claimed for the Biharamulo Project is a reasonable sum and so I accept it. As for the Rwamishenye Project there was uncontroverted evidence from the witness PW.1, PW.2., PW.3 and PW.4 that about 70% of the contracted work had been done, in that 17 of the 19 I residential staff quarters had been substantially repaired as

contracted; and as regards the office block the same had already been erected only A awaiting the finishing touches. In view of the fact that defendants did not offer any challenge to that evidence I accept it and agree that it was 70% of the whole work. As on 5/4/1983 he had done 50% of the work and got paid half of the contracted sum of shs. 1,426,100/= for the Rwamishenye Project, now he is entitled to shs. 285,220/= B being the 20% of the work done between April 1983 and August 1983. I accordingly award shs.285,220/= as compensation for the Rwamishenye Project. Total award for both projects is Shs1,523,840/=

Issue No. 4 and 5 concern compensation payable to the plaintiff company for the building materials (issue No.4) and building tools (issue No.5) that had been left behind C at both building sites after the plaintiff company had been chased away from there. As regards issue No. 4 and 5 the plaintiff's counsel Mr. Kahangwa submitted that compensation was payable as there was enough evidence indicating that tools and building materials to the tune of shs. 123,391/= were left behind. According to PW.1 D and the storekeeper Libent s/o Mshahili (PW.3) the building materials and tools left behind at both sites was as per the list Exh. A3 prepared by the plaintiff company on 29/5/1984. The two sub-contractors PW.2 and PW.4 corroborated that fact. The defendants did not offer any evidence on the matter but in the written statement of E defence it is alleged that building materials were paid for by the 2nd defendant and that as for building tools the same are in custody of the Commander of Biharamulo T.P.D.F. Camp. No evidence was led as to how the building materials were paid for and so I reject outright that

contention. As regards the building materials, the defendants cannot F escape liability by claiming that a third party might be having them. When notice to sue was sent it was the duty of the defendants to collect those building tools if they were there and hand them over to the plaintiff company in order to avoid liability. Otherwise they are liable in law. I accordingly award the plaintiff company the sum of G shs.123,391/= as indicated in the list which is Exh. A3 in court.

Now issue No. 2, 6 and 7 concern the quantum of damages that plaintiff company is entitled to, after having won the case. For issue No. 2 the plaintiff company claims shs. 1,585,380/= or ordinary damages being 15% of the total sum of the contract sum and that being the anticipated reasonable profit that plaintiff company would have got on the H two projects. Issue No. 6 is a claim also of ordinary damages for shs. 17,500/= for the installation of a water tank at the Biharamulo. And issue No. 7 concerns any other relief that plaintiff company may be entitled to. I

I will start with issue No. 6 concerning ordinary damages of shs.

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17,500/= for the water tank that was installed. It is uncontroverted that the plaintiff A company built a water tank at the Biharamulo Project because water there is scarce. The defendant did not dispute the fact that shs. 17,500/= was a reasonable sum for constructing a water tank, but contended that the damages were not payable because B they were remote. But plaintiff company submitted those damages were not remote. It is trite knowledge that our law draws a line somewhere and says that damages incurred beyond a certain limit are too remote to be recovered. Damages in contract must therefore be proximate. The modern law regarding remoteness of damages in contract is C founded upon the English case of Hadley v Baxendale (1854) 9 Exch. 341 which case is authority for the statement that damages in contract will be too remote to be recovered unless they are such that the defendant, as a reasonable man, would have foreseen them as likely to result, according to the usual course of things or because of D special facts made known to him. That decision is incorporated in s. 73 (1) of our Tanganyika Contract Act Cap. 433. And the doctrine received explicit judicial recognition in East Africa through the decision of E.A.C.A. in Woodruff v Dupont [1964] E.A. 404. Applying the above doctrine, it is my considered view that the building of a water tank, because of the scarcity of water at Biharamulo, was a matter E which defendant knew or as a reasonable man should have known as likely to happen, and so defendant is liable.

Concerning the ordinary damages of Shs. 1,585,380/= on issue No. 2, I think there is little controversy on the principle of law applicable. Damages are intended to put the injured party in the same financial position as he would have been if the contract had F been performed according to its terms. Therefore the plaintiff company as of right has a claim to the profit that would accrue to him after deducting his expenses, if the contract had been fulfilled. The plaintiff company has put the profit that would have accrued at G 15% of the contract sum. It was the plaintiff's case that normally for building contracts 15% of the contract sum accrue to the contractors and that it is reasonable sum. In my considered view the claim appears a

reasonable sum, more so that the defendants did not offer any evidence to contradict that point. The plaintiff's advocate Mr. Kahangwa H cited the English case of Suisse Atlantique Societe de Armement Martime S.A. v N.V. Rotterdamsche Kolen Centrale [1966] 2 W.L.R. 944 in support of his contention on this leg. But I am afraid the case is of no assistance as it concerned a matter of remoteness of damages - that is whether loss of profits was reasonably foreseeable or not. That was a case where plaintiff hired out his ship for carrying of goods for two years and it was agreed that he would be paid a certain sum per trip I made. The ship was to make a number of trips for the two years of

contract. The ship failed to make up an anticipated number of trips in the two years and A plaintiff alleged that it was due to the negligence of the defendants. He claimed inter alia loss of profits he would have made if the anticipated number of trips for two years, damages for loss of profits would have been payable but not in the present case where there was no such contract and so no profit was payable. That case is distinguishable B from the present case in that, that case concerned the issue of remoteness of damages that is whether loss of profits was reasonably foreseeable or not; but in our case at hand the issue is simply one of assessment of a quantum of damages which are conceded not to be remote. And as I said earlier I am satisfied that a claim of 15% of the contract C sum amounting to shs. 1,585,380/= is a reasonable sum and I awarded that sum on this head.

Before I sign off I should put on record that it was conceded by the 1st defendant that if the 2nd defendant was in breach of the contract, then 1st defendant would be vicariously liable for the sins of his employee the 2nd defendant because it is common knowledge D that 2nd defendant throughout acted in the usual course of his employer's business.

Be that as it may, the plaintiff company succeeds in toto in its claim. I enter judgment for the plaintiff in the sum of shs. 3,250,111/= as claimed plus costs of the suit. E

Order accordingly.

F

[zRPz]RAMADHANI MASHA v REPUBLIC 1985 TLR 172 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

June 3, 1980
CRIMINAL APPEAL 15 OF 1980 G
Flynote
Criminal Practice and Procedure - Sentencing - Accused sentenced without first being convicted - Whether lawful. H
-Headnote

In a criminal trial for a charge of being in possession of property suspected of having been stolen, the trial court magistrate, after hearing the evidence of both the prosecution and the defence, proceeded to sentence the appellant to imprisonment for a term of six months. But he did so without first convicting him . Four months later, the magistrate I wrote a judgment convicting the appellant as charged.

1985 TLR p173

SISYA J

Held: In a criminal trial, where it is decided that the accused person is guilty, the basic A elements of the decision of the court are conviction and sentence, with the former being a prerequisite of the latter; as there was no conviction when the appellant was sentenced, there was no decision of the court and, the error being incurable under s. 346 of the B Criminal Procedure Code [now s. 388 of the Criminal Procedure Act, 1985], the sentence passed in this case was unlawful.

Case Information

Appeal allowed.

No cases referred to. C

W.R. Mramba, for the appellant.

J.S. Mwale, for the respondent.

Judgment

Sisya, J.: The appellant appeared before the District Court at Tanga D and pleaded not guilty to a charge of being in possession of property suspected to have been stolen or unlawfully obtained contrary to section 312(1) of the Penal Code as amended by Act No. 26 of 1971. Trial commenced and proceeded on 3.10.79 before E the Resident Magistrate (W.N.B. Kapaya Esq.), Tanga. The witnesses testified on the Prosecution side and then, upon finding that a prima facie case had been made out sufficient to require him to make a defence to the charge, the appellant too gave evidence in his defence. However, he had no witness to call and, consequently, therefore, none gave evidence on his behalf. F

Immediately after the appellant's evidence in defence the learned Resident Magistrate recorded and I quote from the record of proceedings:-

> Pros: The accused is a first offender - but these offences are too common. I request for a deterrent sentence as an example. G
>
> Mitigation: I have eight children to support and an ageing mother, I look after them.

These are the usual preliminaries before sentence and indeed, as the record shows, H thereafter, the learned Resident Magistrate proceeded to sentence the appellant to imprisonment for a term of six months. He also made an order for forfeiture of six bundles of beads, Exh Pl, which incidentally, were the offending objects in the matter. No conviction was entered against the appellant before sentence then. However, almost I four months later, i.e. on 30/1/80, the learned Resident Magistrate wrote

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SISYA J

a judgment in which he ended up by convicting him, i.e. the appellant, as charged. A

In his petition of appeal which was drawn on his behalf by learned Counsel, Mr. Mramba, the appellant advances three reasons of appeal namely: B

"1. That the learned trial Magistrate erred in law in sentencing the appellant before judgment and conviction.

2. That on the evidence adduced there was no sufficient evidence upon which a conviction could be founded.

3. That the sentence of six months imprisonment was excessive in the circumstances of C the case."

At the hearing of the appeal Mr. Mramba for the appellant, wisely, withdrew the second and third grounds of appeal. However, on the first ground of appeal Mr. Mramba D submitted that in terms of section 210 of the Criminal Procedure Code it was imperative on the learned Resident Magistrate to enter a conviction prior to sentence. This implies the writing and/or delivery of a judgment whose mode of delivery and its contents are laid down in section 170 and 171 of the Criminal Procedure Code, respectively. Mr. Mramba contended that the learned Resident Magistrate did not comply with these E provisions of the Code and therefore the passing of sentence before conviction was unlawful. He, however, left it to the Court to make the necessary orders.

The learned State Attorney, Mr. Mwale, shared the same views with Mr. Mramba for the appellant in this matter and, consequently, he followed suit in leaving it to this Court F to make the necessary orders.

It is convenient at this stage to set out the provisions of Section 210 of the Criminal Procedure Code. They read:

210. The Court having heard both the complainant and the accused person and their G witnesses and evidence shall convict the accused and pass sentence upon or make an order against him according to law, or shall acquit him, or shall dismiss the charge under section 38 of the Penal Code. H

It sounds clear to me from the above that in a criminal case where the trial Court has decided that the accused person is guilty there are two basic elements of "the decision" and these are conviction, and sentence. The former, i.e. conviction, being a pre-requisite to the latter, i.e. sentence. As aforementioned, the learned Resident Magistrate, in the I instant matter, did not enter any conviction prior to sentence. That being so, particularly

because the conviction is a basic element of the decision in the language of section 210 A of the Criminal Procedure Code and a prerequisite to sentence, I do not hesitate to find, which I do, that at the time the appellant was sentenced there was no decision of the Court at all. The sentence that was nevertheless, passed was, therefore, unlawful and it is so declared. The fact that, as aforesaid, the conviction was entered B approximately four months later is immaterial.

Basic and fundamental as this error is I am of the considered opinion that this is not a fit case for invoking provisions of the "curative" section, i.e. section 346 of the Criminal Procedure Code. I may, however, add that the position would, to my mind, have been C completely different had the learned Resident Magistrate entered a conviction or words to the following effect, that is to

say "Accused is found guilty and convicted as charged," immediately after the defence case and before the learned Public Prosecutor's plea for a deterrent and exemplary punishment which, itself, is I must say with respect, of dubious legal basis. D

The question that now arises is what order is befitting in this case with regard to the sentence? The answer is simple. In so far as the said sentence has been found and declared to be unlawful the same cannot be allowed to stand and it is accordingly quashed and set aside. I have considered the possibility of remitting this record to the E District Court with directions that the Court now proceeds to pass proper sentence on the appellant. However, I am of the view that that cannot be done without prejudicing the appellant who must have, by now, completed serving the sentence unlawfully passed on him by the trial Court. In the circumstances I am loathe to make any further orders. F

Appeal allowed

1985 TLR p175

G

[zRPz]JUMA BAKARI v REPUBLIC 1985 TLR 175 (HC)

Court High Court of Tanzania - Tanga

Judge Sisya J

March 16, 1982

CRIMINAL APPEAL 20 OF 1980

Flynote

Criminal Law - Rogue and vagabond - Being a rogue and a vagabond c/s 177(2) of the H Penal Code - Ingredients of the offence.

Criminal Law - False information - Giving false information c/s 122 of the Penal Code - Ingredients of the offence.

-Headnote

The appellant was convicted of being a rogue and a vagabond contrary to s. 177(2) of I the Penal Code. No evidence was adduced to show that

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SISYA J

he was going about procuring and gathering or collecting alms or charitable contributions A under false or fraudulent pretence. The appellant was also convicted of giving false information to a person employed in the public service contrary s. 122(b) of the Penal Code. The appellant had reported to the Police that he had given some money to PW3 for onward transmission to another person but PW3 had misappropriated the same. B Apparently, he was found guilty because he could not prove the giving of the money to PW3.

Held: (i) To convict a person of being a rogue and vagabond, it must be established that the person was going about as a gatherer or collector of alms, or was endeavouring C to procure

charitable contributions of any kind under false or fraudulent pretence; as no evidence was adduced to show any of those things in relation to the appellant, the conviction was illegal;

(ii) the mere failure of the appellant to prove his allegations does not necessarily D make the allegations false; it rests upon the prosecution to prove that the information he gave was false, and that he knew or believed it to be false;

Case Information

Order accordingly. E

Case referred to:

1. Joseph Odhengo Ogongo v R. [1954] 21 E.A.C.A. 302

Judgment

Sisya, J.: For a conviction to stand for the offence of being rogue F and vagabond contrary to section 177(2) of the Penal Code it must be established, beyond all peradventure, that the convict was going about as gatherer or collector of alms, or endeavouring to procure charitable contributions of any nature or kind, under false or fraudulent pretence. Not even a grain of evidence was adduced towards this G end in the instant matter in relation to this appellant. Yet he was, on count one, charged with and convicted of that offence, that is that of being rogue and vagabond contrary to section 177 (2) of the Penal Code, and he was conditionally discharged for a period of twelve months. The conviction is illegal and it cannot, therefore, be allowed to stand. H The same is hereby quashed and the purported order of conditional discharge passed thereon is set aside.

On count two the appellant was charged with and convicted of the offence of giving false information to a person employed in the public service contrary to section 122(b) of the Penal Code. The salient facts of the Prosecution case show that the appellant reported I to the Police

SISYA J

that he had given PW3 some money, proceeds of a meat business in which he and PW2 A were interested, for onward transmission to the latter, that is PW2 , but PW3 had misappropriated the same. PW3 was arrested in connection with the matter but he was subsequently released. In their evidence in the Court below both PW2 and PW3 denied that PW3 ever handled any cash from the said meat business. This was contradicted by B the appellant and one Apelesi Moses Shemkingo (DW3) who worked as a labourer in the appellant's butchery at the material time. These two persons asserted that PW3 was actually the person who was the cashier at the appellant's butcher. The learned trial Magistrate rejected the defence story simply by reason of the fact that the handing over C was not reduced in writing. The appellant retorted that there was no handing over certificate because of mutual trust that then existed between them. The Police officer who investigated the case, PW4, had earlier on told the trial Magistrate at the hearing of the case that the appellant had no proof that he handed over the money to PW3. D With due respect to the learned trial Magistrate the mere fact that the appellant failed to prove his allegation does not, ipso facto, mean that the report he made to the Police was false. For a conviction on count two to stand it was incumbent upon the Prosecution to prove, among other things, that the information which the appellant gave E was false and that he himself knew or

believed that the same was false. On the evidence on record it cannot be said with moral certainty and to the exclusion of every reasonable doubt that the appellant deliberately made the report which he himself knew was false. For this reason the conviction on count two too is quashed and the sentence passed thereon is set aside. F

The record of proceedings of the trial Court shows that when the charges were being read out to the appellant he, i.e. the latter, behaved in a manner which, by every civilized standard, was disrespectful. The learned trial Magistrate took cognizance of the contempt of Court and, following the procedure laid down in the case of Joseph G Odhengo s/o Ogongo v R. (1954) 21 E.A.C.A. 302 proceeded to deal with him under Section 114 (1)(a) of the Penal Code. The appellant refused and/or neglected to answer relevantly when given an opportunity to do so. He cannot now be heard to complain against the course of action pursued by the trial Magistrate. If anything the H appellant, now has himself to blame because he, albeit unwillingly, forfeited his right to be heard on the point. He was eventually sentenced to three months imprisonment. On my evaluation of what transpired at the material time I am satisfied that the conviction on this count was proper and it is hereby upheld. In the final result this appeal succeeds to the extent indicated. In all other respects it is dismissed. I

Order accordingly.

1985 TLR p178

A

[zRPz]CHAMBO RAMADHANI v REPUBLIC 1985 TLR 178 (HC)

Court High Court of Tanzania - Tanga

Judge Sisya J

May 6, 1963

CRIMINAL APPEAL 58 OF 1980

Flynote

Criminal Law - House breaking - Breaking into a house with intent to commit an offence, B c/s 294(1) of the Penal Code - Ingredients of the offence.

Criminal Law - House breaking - Time of the commission of the offence - Act of house breaking committed at 11.00 p.m.- Ss.5 and 294 of the Penal Code. C

Criminal Practice and Procedure - Charges - House breaking - Charge of housebreaking not specifying the offence intended to be committed - Effect of the omission.

Evidence - Identification of the accused person - Offence committed at night - Accused identified by fellow villagers who know him well - Whether enough to establish identity. D

-Headnote

The appellant was convicted of housebreaking. The charge did not disclose the offence which the appellant intended to commit in the house broken into. The facts were that E some villagers, having been tipped off that robbers were planning to raid a house on the material night, placed a burning lamp in front of the house and kept vigil in the nearby surrounding

bushes. The gang of robbers appeared at 11.00 p.m. Among them, the hiding villagers saw the appellant, a fellow member of their village, before the light was put out and the house broken into. The gang fled when the villagers started shouting. F But one of them was apprehended and he mentioned the appellant as having been one of the fugitives. The appellant raised the defence of alibi but the trial court rejected it. He appealed to the High Court. G

Held: (i) The offence of housebreaking is constituted by entering a building with intent to commit an offence therein and this was not sufficiently shown in this case;

(ii) a charge of house breaking should specify the particulars of the offence intended to be committed in the house broken into; for not making this specification, the H charge in this case was defective;

(iii) although the charge was defective for omitting to specify the offence intended to be committed, the appellant was not prejudiced by the omission and the defect was curable under s.346 of the Criminal Procedure Code [now s. 388 of the Criminal Procedure Act, 1985]; I

(iv) although the circumstances in which the appellant was identified

were not as easy as they would have been had the incident happened in the day time, the A appellant was not a stranger to the villagers who identified him and he was also named by one of the gangsters as being one of his companions; those factors are enough to establish that the appellant was correctly identified as one of the burglars;

(v) as this was housebreaking committed at night, it constituted the offence B termed "burglary" and the charge should have indicated as such;

Case Information

Appeal dismissed.

Cases referred to: C

1. Rajabu Abdallah v R., [1967] H.C.D. 416
2. R. v Bakari bin Yusuf, (1940) 7 E.A.C.A. 63

A.T. Akarro, for the Republic. D

Judgment

Sisya, J.: This appellant was charged with two counts of Stealing and Housebreaking respectively. The charge as laid reads:

1st count: Offence Section and Law: Stealing C/S 265 of the Penal Code Cap. 16 Vol. 1 of E the Laws. Particulars of Offence: The person charged on the 7th day of June 1978 at about 14.30 hrs at Bombani village within the District of Muheza in Tanga Region did Steal one Shotgun, makers No 3778 (?), valued at Shs. 1,000/= the property of Jonathan Ngereza. F

2nd count: Offence Section and Law: House breaking with intent to commit a felony c/ss 294(1) of the Penal Code Cap. 16 Vol. 1 of the Laws.

Particulars of Offence: The same person charged on the 1st day of June, 1978 at about 23.00 G hrs at Mashewa Village within the District of Muheza in Tanga Region did break and enter into the dwelling house of Maiko John with intent to commit a felony therein.

He was acquitted and discharged on count one. He was, however, found guilty and H convicted as charged on count two, and he was sentenced to five years imprisonment. He has now appealed to this Court against both conviction and sentence.

As can be observed here in above the charge in count two did not specify the felony or, I rather, the offence which the appellant had allegedly

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SISYA J

intended to commit. It is clear from the wording of section 294 of the Penal Code that A the intent to commit an offence is a necessary and indispensable ingredient of the offence created by the section. There is a host of cases in which it was authoritatively held that a charge of entering a building with intent to commit an offence therein should specify the particular offence intended. It is clear, therefore, that in so far as the intended B offence was not specified the charge in count two is defective. The short but sharp question that arises is, what effect does this defect have on appeal?

The learned State Attorney, Mr. Akarro submitted that the defect is incurable because the appellant was not informed as to what he was charged with. He based his argument C on the decision of this Court, per Biron J., in the case of Rajabu Abdalla v R. [1967] H.C.D. no. 416. The accused in that case was charged with housebreaking and was convicted of attempted housebreaking. The charge stated that he broke and entered a specified dwelling house "with intent to commit a felony therein", but it did not specify the D felony which had been intended. On appeal Biron J. held that the accused was not informed as to what he was charged with, for the intent, which is an indispensable ingredient of the offence, was never specified and that the defect is not curable on appeal. However in an older case of Rex v Bakari Bin Yusuf (1940) 7E.A.C.A 63 it E was held by the Court of Appeal for Eastern African (in an appeal from the precursor of this Court H.M. High Court of Tanganyika) that an information or charge of entering a dwelling house with intent to commit a felony therein should specify the particular felony intended but failure to do so will not be a fatal defect if the accused was not thereby prejudiced: F

As was said in Balmakand Ram v Cansam Ram (22 Cal at p. 405)" we must be guided, not by the undefined possibility of the accused having been prejudiced, but by some suggestion which a reasonable man can accept, that there has been prejudice to the accused." Where G the Court feels that there is no possibility that the accused can have been prejudiced by some error or omission in the charge or information the provision of section 3335 of the Criminal Procedure Code may properly be applied. H

Where it must be conceded that in some cases this might indeed be a fatal defect I am of a considered view that the decision in the Rajabu Abdalla case is too extreme and that, although extreme cases must yield to principles which logically apply to them, the Rajabu Abdalla case is with respect, unnecessarily extreme. It is thus, to my mind bad I law and ought, therefore, not to be followed. At any rate the decision of the

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SISYA J

Court of Appeal in the Bakari Bin Yusuf case does not only make good sense but it is A also binding on this Court.

In the instant matter it must have been plain to the appellant from the evidence of, at least, three witnesses for the Prosecution, viz. PW2, and PW6, that he and his companions, who were tried separately, tried to steal cash and/or whatever they could B lay their hands upon in the complainant's house with armed force. Since the appellant also had the benefit of a full trial I am satisfied that he could not, therefore, have been prejudiced by the omission to specify in the charge that the offence intended was, to be precise, robbery with violence. In the final event I hold that the defect is curable on C appeal under section 346 of the Criminal Procedure Code, the appellant having not been prejudiced at all.

Now, turning to the merits of the appeal itself, the only substantive point for consideration by this Court is the identification of the appellant.

Evidence was given by PW2, PW3 and PW6 to the effect that they had been tipped that D a gang of armed bandits had planned to raid the house of PW3 on the night of 15/6/78. They and other villagers then kept vigil in the surrounding or nearby bushes. Two lamps were lit. One was left burning infront of the house and the other at the back. At about 11.00 p.m. five persons arrived. One of them had a gun whereas the others E had pangas. PW2 and PW3 managed to see and identify the appellant as one of those with pangas. He, i.e. appellant, is a resident of the same village, Mashewa; so the Prosecution witnesses knew him well. As indeed was expected one of the bandits kicked down the lamp in front of the house and it went. Darkness then prevailed but by F then the appellant had already been seen and identified: the others were not. The appellant and his companions broke the front door and at least four of them entered the house. One of them remained outside. At that stage PW2, PW3, PW6 and others came forward from the shrubs while crying out "thieves! thieves!" The intruders bolted out and took to their heels while their gunman was firing in the air. One of the villagers, G Rashidi, who had a gun, responded. He aimed at the fleeing intruders. His bullet hit and physically incapacitated one of the bandits, one Ally. The villagers closed in on the wounded savage whereas his companions fled and escaped. Ally, however, mentioned them all. The appellant's name was not spared: He, appellant, was named as one of the H fugitives. He was, nevertheless, apprehended later.

The appellant raised the defence of alibi but the same was rejected by the learned trial Magistrate and rightly so too. The same hardly raises any reasonable doubt in my mind either.

The learned trial Magistrate found PW2, PW3 and PW6 to be honest and truthful I witnesses. Since he had the advantage of seeing and hearing

them and it has never dawned upon me that he palpably abused that great advantage I A am not persuaded that in doing so the learned trial Magistrate erred. I will thus go by his assessment of these witnesses' credit without reservations.

Indeed circumstances favouring identification were not as easy as they would otherwise B have been had the incident taken place in broad day light. Nevertheless, there was a light provided

by a burning lamp at the scene before it was violently quenched; the appellant was not a stranger in the eyes of those who identified him - they knew him before and he was their fellow villager, at least two persons, i.e. PW2 and PW3, were able to see and recognise the appellant, and the appellant was named by the wounded C gangster, Ally, as well as being one of his companions. All these factors in their totality satisfy me beyond any peradventure that the appellant was one of the would be robbers on the material night. His identification was, therefore, fully established.

Having regard to the circumstances in which the offence was committed the sentence is D not excessive and the same is hereby confirmed. Before I sign off, let me observe that had the learned trial Magistrate, whom I personally know as an experienced Magistrate, exercised some slight presence of mind public time which has, so far, been wasted in considering whether or not the omission to specify the offence intended in count two is E fatal would have been spared or saved. I refuse to believe that the learned trial Magistrate is ignorant of the fact that the offence intended ought to have been specified in Court. I am, at the same time, prepared to accede that most probably he did not bother to go through the charge sheet before it was admitted or filed. I have time and F again told Magistrates that it is always desirable to do so. Even then, even if the learned trial Magistrate did not look at or go through the charge before admitting it one would have expected him, experienced as he is and if, indeed, he exercised some presence of mind, to have easily spotted out the defect at the time he took the appellant's plea - or G did he not even read over the charge on count two to him?

Again, had the learned trial Magistrate exercised presence of mind at the time he read over the charge in count two he would not have failed to spot that because of the time shown in the charge (23.00 hrs) the proper offence to the charged was not the one H shown but "Burglary". If perhaps the mode of quoting the time confused him then he must have got clarification from PW2, PW3 and PW6, all of whom specifically fixed the time of the commission of the offence at 11.00 p.m. The attention of the learned trial Magistrate is drawn to that portion of Section 294 of the Penal Code which reads: 'If I the offence is committed in the night it is termed "Burglary".....' "Night" is defined in Section 5 of the Penal Code

to mean "the interval between seven o'clock in the evening and six o'clock in the A morning."

In the final event this appeal fails and it is dismissed in its entirety.

B Appeal dismissed.

C

[zRPz]KAUTO ALLY v REPUBLIC 1985 TLR 183 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

April 14, 1982

CRIMINAL APPEAL 78 OF 1980

Flynote

Criminal Practice and Procedure - Charges - Duplicity - Three separate and distinct D offences charged in the same count - Charge bad for duplicity.

Criminal Practice and Procedure - Trial - Naming the accused persons - Serial order of identifying jointly accused persons - Serial order in the judgment inconsistent with serial E order in the charge sheet - Effect of the inconsistency.

-Headnote

The appellant, along with another person, was convicted "as charged" in a trial in which two other co-accused persons were acquitted. The facts were that on the material day F the complainant, a Police Officer, waved at a bus to stop because he had grounds to believe that it was unlawfully overloaded. The bus stopped and the complainant got in for the purpose of counting the number of passengers. As he was about to start counting, the bus conductor ordered the driver to drive on and the latter readily G complied. Then another person pushed the complainant out and he fell off the bus while it was still in motion and he was seriously injured. Subsequently, four persons were jointly charged with the offence of obstructing a Police Officer in the execution of his duty. But the framing of both the charge and the particulars of the offence was such that a number of separate and distinct offences were lumped together in the same single H count. The trial court convicted the first and the second accused, the latter being now the appellant, "as charged", and acquitted the third and the fourth accused. But the charge sheet referred to the appellant as the third accused, and the trial court record also showed similar confusion about the labelling of the other accused persons in the course I of the trial.

1985 TLR p184

SISYA J

Held: (i) The lumping together of separate and distinct offences in a single count as was A done in this case may render a charge bad for duplicity and it enhances the possibility of criminals getting away, inadequately punished or unpunished at all, purely on technical grounds;

(ii) the changing of the labels attached to the different co-accused persons at different stages in the course of the trial causes confusion and brings about doubts as to B whether the person convicted is indeed the one found guilty;

Case Information

Appeal allowed.

No cases referred to. C

Judgment

Sisya, J.: This case was a bungle right from the beginning. The charge as laid reads: D

Obstructing a Police Officer due to his execution of duty c/s 243 (b) and (e) of the Penal Code.

There are two obvious errors here. The first is the wording of the offence itself. This is so glaring to the extent that it makes one wonder how it escaped notice of the learned E trial

Magistrate, at least at the time he read it over to the accused; that is to say, if at all he properly arraigned him. Or, if the learned trial Magistrate noticed it, why he did not correct the error accordingly. The second error is in the law cited. Each of the paragraphs of section 243 of the Penal Code - paras. (b) and (c) included - create a F separate and distinct offence. At most offences under these paragraphs may be charged in the alternative but not in the same and single count as was done in this case. Perhaps it may be argued that these errors did not embarass the accused or occasion any miscarriage of justice. That, however, is not the end of the story. G
The particulars of offence read as follows and I quote from the relevant charge sheet:

The persons jointly and together charged on the 7th day of February, 1980, at about 7.30 hrs, at Ikulu (Ndogo), Lushoto District and Tanga Region, did wilfully resist the lawful arrest of one H C. 7745 P.C. Florian a Police Officer employed in the government service, as a result they assaulted the said Police Officer on his right leg and all the arms by pushing him from the bus Reg. no. TZ 4993 Usambara Bus Service and caused him to suffer grievous harm due to his I execution of duty.

1985 TLR p185

SISYA J

These particulars are, so to speak, pregnant with errors - grammatical as well as A substantive. To quote but a few, it was actually the arrest by and not the arrest of P.C. Florian that the accused are said to have resisted. Secondly, there are three overt acts lumped together in the charge, namely wilful resistance to arrest, assault and doing grievous harm. Each one of these is a separate and distinct offence under the Penal B Code; the last one being chargeable under section 225. The importance of a charge as the central point in every criminal proceeding is well known and, therefore, it hardly needs a restatement. The responsibility for the correctness of the charge, undoubtedly lies on the prosecutor. This Court, however, wishes to draw the attention of all C Magistrates to the desirability of their going through the charge before admitting the same. This is not only prudent but it is also one of the ways of lessening the possibility of criminals subsequently getting away either without being punished adequately or even without being punished at all, purely on technical grounds. In the instant matter it could D very well be argued that the charge is bad for duplicity. I will, however, leave this point at that.

Now turning to the facts of the case, there can be no doubt that the star witness is the complainant, i.e. Florian (PW1), himself. His story is a sad one. On the relevant day E and at the material time he was on guard duty at the State Lodge, Lushoto, when he saw a bus registration No. TZ 4993 approach, heading towards the direction of Lushoto. There were at least three persons somewhat precariously perched on the roof rack. It immediately dawned upon him that the said bus must have carried more passengers than it was otherwise authorised to carry. He, therefore, waved at its driver to stop; which he F did at such a distance from where he stood as to enable those on the rack to get down and wade through into the crowded bus. When PW1 got to the bus he ordered its occupants to get down and be counted. Five persons got down. At that stage he boarded the bus and stood at the stairs. In his right hand he held a gun whereas he had G a note book and a pen in the other. At the same time he heard

and saw a person "order" the bus driver to drive on. The bus took off, carrying PW1 away with it. He, i.e. PW1, managed to find himself some support where he stood in the bus. After covering a short distance a man, however, approached him and, without any exchange H of words, pushed him out. PW1 fell off the bus while it was still in motion and sustained as a result thereof, among other injuries, a fracture of the left fibula. The bus moved on as if nothing had happened. However, by what must have been a quirk of fate, it did not go far. After covering a bare 112 metres it careered off the road and subsequently it hit a wall on the road side. I

1985 TLR p186

SISYA J

There were four accused persons who appeared in the Court below to answer to this A same mangled charge. They all pleaded not guilty. At the trial that subsequently followed PW.1 identified the first accused as being the conductor of the bus and the person who "ordered" the bus driver to drive on before the count of the passengers begun; the second accused as being the person who pushed him out of the moving bus; B and the fourth accused as being the person who was driving the bus at the material time. PW1 told the trial Court that after the accident the third accused accompanied by the first accused returned to where he lay with his broken leg and began or "order" him to go to the Police station and report the matter because, according to them, he was the C one who cause the accident. All the accused raised the general defence of mere denial.

In his judgment which, with respect, requires extra power of perception to comprehend, the learned trial Magistrate acquitted the third and fourth accused. He, however, convicted the first and second accused persons "as charged" and sentenced then to nine D months and four years imprisonment, respectively. The latter, i.e. the second accused who, incidentally, is the appellant in the instant appeal, was given a stiffer sentence for pushing the Police Officer from the moving bus "to meet his death".

Without going into the merits and demerits of this appeal I feel constrained to, first of all, deal with one point which, to my mind, is very likely to be dispositive of this appeal. In E short it is the identification of this appellant as being the very same person who both PW1 and the trial Magistrate referred to as the second accused. This state of affairs has been brought about by the fact that according to the relevant charge sheet this appellant was the third accused. According to practice one would expect that would also be the F way he appeared in the dock at the trial: That is to say, sit after or next to the man who appeared as second accused, on the one hand, and the man who appeared as fourth accused, on the other. However, in his judgment, in both typed and manuscript forms, the learned trial Magistrate, for reasons beyond my comprehension, labelled this G appellant, Kauto Ally, the second accused. The third accused is shown to have been one Hamad Mngazija. To add to this confusion the record of proceedings itself appears to show that the sitting arrangement of the accused was not as listed in the charge. For example, Faraji Omari, who is shown as fourth accused in the judgment and was H acquitted is shown as second accused in the charge sheet which was read out in Court. It will be recalled that PW1

identified the second accused - no names were mentioned - as being the person who pushed him out.
All in all I entertain grave doubts as to whether or not this appellant was indeed the same I person both PW1 and the trial Magistrate had in mind when they talked of the second accused in the case. In the
1985 TLR p186
circumstances it will be dangerous to uphold this conviction which is hereby quashed and A the sentence passed thereon set aside. It is further directed that unless the appellant is being held on some other lawful charges he should be set at liberty forthwith.
B Appeal allowed.
1985 TLR p187
C
[zRPz]REPUBLIC v ATHANASIO MWAGILO 1985 TLR 187 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

December 5, 1981
CRIMINAL REVISION 1 OF 1981
Flynote
Criminal Practice and Procedure - Alternative verdicts - Verdicts alternative to burglary - D Whether neglect of duty by a watchman is a kindred offence to housebreaking - Criminal Procedure Code s. 186 [now S.305 of the Criminal Procedure Act, 1985]
-Headnote
The accused was a night watchman at a school and he was charged with breaking into E the school building and stealing therefrom, contrary to s. 296(1) of the Penal Code. The trial court acquitted him of that offence but purporting to act under s.186 of the Criminal Procedure Code [now s. 305 of the Criminal Procedure Act, 1985], convicted him of neglect of public duty, an offence under s. 121 of the Penal Code. F
Held: The kindred offences of which a person charged with burglary or housebreaking may be convicted under s. 186 of the Criminal Procedure Code are those offences under one of the sections 294 to 298 of the Penal Code; neglect of public duty is not an G offence kindred to burglary or housebreaking and it is not one of those mentioned under s.186 of the Criminal Procedure Code;
Case Information
Order accordingly. H
No Cases referred to.
Judgment

Sisya J.: On 2nd December, 1981, I ordered the immediate release of the accused person from prison, unless, of course, he was being held on some I other lawful charge. I reserved my reasons for so doing. I now proceed to give them.

1985 TLR p188

SISYA J

The accused, a night watchman at Mkonje Primary School, Handeni District, was A charged with the offence of breaking into a school building, the very one which he was supposed to guard, and stealing therefrom various articles including stationery, building materials and sewing machines, all valued at Shs.9,480/=, property of the said Mkonje Primary School. This is an offence under section 296 (1) of the Penal Code. B

After a full trial the learned trial Magistrate found him not guilty of the offence charged and proceeded to acquit him of that offence. However, purporting to act under section 186 of the Criminal Procedure Code the learned trial Magistrate found him guilty of an C offence under section 121 of the Penal Code and proceeded to convict him of that offence and sentenced him to two years imprisonment.

For the benefit of the learned trial Magistrate section 186 of the Criminal Procedure Code may conveniently be reproduced. It reads: D

186. When a person is charged with an offence under one of sections 294 to 298 of the Penal Code and the Court is of the opinion that he is not guilty of that offence but that he is guilty of any other offence under another of the said sections, he may be convicted of that other offence although he was not charged with it. E

It goes without saying that section 122 of the Penal Code is not" another of the said sections", i.e. ss. 294 to 298 of the Penal Code. Putting it differently the purpose of section 186 of the Criminal Procedure Code is to make provision for a person charged F with the offence of burglary or any other offence under sections 294 to 298, but found not guilty of the offence charged to be convicted of a kindred offence under any of these same sections, 294 to 298. Needless to say, there is nothing kindred in the offences of breaking into a building and committing a felony therein and neglect of official duty G contrary to section 121 of the Penal Code. By acting as if there was, all the same, the learned trial Magistrate was clearly wrong. The conviction could not, therefore, stand and that is why the same was quashed. Since nothing will come out of nothing, the sentence that was purported to have been passed thereon too could not stand. The H same thus is accordingly set aside. These are the reasons.

I Order accordingly.

1985 TLR 189

A

[zRPz]ABSOLOMON MWACHELEJI v REPUBLIC 1985 TLR 189 (HC)

Court High Court of Tanzania - Tanga

Judge Sisya J

March 5, 1984
(PC) CRIMINAL APPEAL 3 OF 1981
Flynote
Criminal Practice and Procedure - Compensation in criminal trials - Compensation B ordered in the absence of any criminal liability - Whether the order can stand.
-Headnote
The appellant was charged with setting fire to crops contrary to s.321(a) of the Penal C Code. The Primary Court convicted him and sentenced him to pay a fine. It also ordered him to pay compensation. On appeal to the District Court, the conviction was quashed and the sentence was set aside; but the order to pay compensation was upheld. He appealed to the High Court. D
Held: After the appellant was absolved of criminal liability, the compensation order against him remained with no basis and it could not stand.
Appeal allowed. E
No cases referred to.
Judgment
Sisya, J: This is a second appeal and it is against the order of F compensation only. The appellant was charged with the offence of setting fire to crops and growing plants c/s 321 (a) of the Penal Code. After a full trial and conviction he was sentenced by the Maramba Primary Court of Muheza District to pay a fine of shs.400/= or in default of payment thereof to go to jail for three months. He was also ordered to pay shs. 600/= compensation to the complainant. G
Aggrieved he appealed against conviction, sentence and order of compensation to the District Court. On first appeal the District Court quashed the conviction and set aside the sentence but the first appellate court upheld the order of compensation. In his memorandum of appeal the appellant avers that the learned District Magistrate on first H appeal erred in law in upholding the order of compensation. This is a point of law. It is not clear under what provision of the law the learned District Magistrate ordered the compensation after he had found that the appellant was not guilty of the offence charged. To the best of my knowledge the only relevant provisions of the law under which the I learned District Magistrate could have acted are section 31 of the Penal Code and section

176 of the Criminal Procedure Code. Both these provisions, however, come into play A only when a person has been convicted of an offence. Since the appellant was not convicted of an offence, or rather he had been absolved of criminal liability, I cannot see how this order of compensation can stand. The same is hereby, therefore, quashed and set aside. If the appellant has already paid the compensation then the same should now B be refunded to him. I may mention in passing that the way is left open to the complainant, if he so wishes, to proceed by way of a civil suit against the appellant. All in all this appeal succeeds and it is hereby allowed.
C Appeal allowed
1985 TLR p190
D
[zRPz]BAKARI MSELEMU v REPUBLIC 1985 TLR 190 (HC)

Court High Court of Tanzania - Tanga
Judge Maina J

May 26, 1983
CRIMINAL APPEAL 3 OF 1981 E
Flynote
Criminal practice and Procedure - Hearing - Case disposed of in the absence of the accused - No evidence that accused absconded deliberately - Whether conviction proper F and just - Criminal Procedure Code, s. 202A [now s. 227 of the Criminal Procedure Act, 1985].
-Headnote
The appellant was released on bail after the close of the prosecution case. He did not G appear on the several occasions when the case was fixed for hearing and he was reported sick and admitted in hospital. Then on one occasion, both the appellant and his sureties being absent, the prosecutor alleged that the appellant was hiding in the forests. On that basis the court ordered the appellant's arrest and subsequently, proceeded to H convict and sentence him in absentia on the basis that he had absconded. This was done under s. 202A of the Criminal Procedure Code [now s. 227 of the Criminal Procedure Act, 1985]. There was no evidence that the absence of the appellant was deliberate or I that he and his sureties were informed of the date the case was to be called for hearing.
1985 TLr p191
MAINA J
Held: A trial court can proceed to dispose of a case in the absence of the accused A person under s.202A of the Criminal Procedure Code only where such absence of the accused cannot be explained at all and his whereabouts are completely unknown; as the appellant in this case had been reported sick and there was no evidence that he had B absconded deliberately, the conditions for proceeding in his absence were not met and therefore he was convicted without being given an opportunity to defend himself.
Case Information
Appeal allowed. C
No cases referred.
Judgment
Maina, J.: This is an appeal by Bakari Mselemu against conviction for cattle theft and the sentence of five years imprisonment. D
The prosecution evidence was briefly as follows: On 28.12.1979 a cow was stolen from the complainant, P.W.I Lenyika Kiseri at Sindeni village in Handeni district. About one week later, on 5.1.1980, PW3 Rashidi Suberi met the appellant who said he E had a cow which he wanted to sell. But since Rashidi knew that complainant's cow had been stolen he passed on the information to PW2 Idi Saidi who also informed the complainant. A trap was arranged. On the day the appellant had agreed to meet Rashidi, the complainant who was not known to the

appellant turned up and Rashid pretended to buy the cow. The appellant told them that the cow was his property. He F was arrested on the spot and he was sent to the Chairman PW4 Ramadhani, to whom the appellant alleged he had bought the cow for a friend. There was also evidence that the appellant had, on 5.1.80, sent the cow to PW5 Mohamed for safe keeping and that on 6.1.80 when the appellant was trying to sell the cow to PW3 Rashid, the said Mohamed (PW5) was also present. G

At the close of the prosecution case, the appellant was released on bail. He did not appear on the date fixed because as the record shows, his surety reported that the appellant was sick and admitted in hospital. On two subsequent occasions when the case was called for hearing the appellant was absent, and reported sick. On 17.3.1980 H the appellant's brother one Mohamed Mselemu informed the Court that the appellant was still sick and admitted at Kwamkono Mission Hospital. The record does not show whether the appellant's surety was present. On the subsequent occasion when the case was called for hearing both the appellant and his sureties were present and on 15.4.1980 I the prosecutor told the court that he was informed that the appellant was sleeping in the

forests. It is on this basis that the court ordered for the appellant's arrest and finally the A court proceeded to pronounce judgment and sentence on the basis that the appellant had absconded.

It is obvious from the record that the appellant was not given an opportunity to defend himself. Although the Magistrate did not specify under what section of the law he decided to proceed with the case in the absence of the appellant it seems he had in mind B section 202A of the Criminal Procedure Code which states:

> Where in any case to which section 202 does not apply, an accused person being tried by a subordinate Court fails to appear on the date fixed for the continuation of the hearing after the C close of the prosecution case or on the date fixed for the passing of sentence, the Court may, if it is satisfied that the accused's attendance cannot be secured without undue delay or expense, proceed to dispose of the case in accordance with the provisions of section 210 as if D the accused, being present had failed to make a statement or adduce any evidence...

In my opinion, a trial Court can only proceed to dispose of the case in the absence of the accused under section 202A of the Criminal Procedure Code where the accused is E absent for no known reason or where his whereabouts are unknown. The appellant in this case was reported sick and admitted in hospital. The surety reported this to the Court and the appellant's brother made the same report. When the Court decided to F issue a warrant of arrest, the appellant and his surety were absent. It is not known whether the surety had been informed of the date the case was to be called for hearing. I think the possibility that the appellant and his surety were unaware of the date the appellant was required in Court cannot be ruled out because when that date was fixed they were not in Court. G

The prosecutor's statement to the Court that the appellant was sleeping in the forests was not based on any evidence. The warrant of arrest issued was not returned to the Court with the necessary endorsement by the officer who was required to execute it. I have not seen a copy of

that warrant in the original file. It is therefore difficult to believe H that the appellant who was sick and admitted in hospital had left hospital and disappeared in the forests. It was therefore, in my opinion wrong on the part of the trial Magistrate to proceed with the case in the absence of the appellant, under the circumstances. There is absolutely no evidence that he had absconded or that he deliberately failed to appear in Court on the I
1985 TLR p193
date he was required. The appellant was convicted without being given an opportunity A to defend himself.
The learned State Attorney conceded that the proceedings were a nullity and he did not support the conviction. With respect, and for the reasons which I have already given above, I agree with the learned State Attorney. The conviction is quashed and the B sentence is set aside.
I have considered whether I should order a retrial. The appellant was, according to the record of the District Court, committed to prison on 14th October 1980 when he started serving the sentence of five years imprisonment. He has already served two and a half years imprisonment. With the normal prison remission further imprisonment will cause C injustice to the appellant.
It is ordered that the appellant be released from custody forthwith unless he is otherwise lawfully held.
D Appeal allowed.
1985 TLR p193
E
[zRPz]MESCO LUCAS v REPUBLIC 1985 TLR 193 (HC)

Court High Court of Tanzania - Tanga
Judge Maina J

May 11, 1983
CRIMINAL APPEAL 4 OF 1981
Flynote
Criminal Practice and Procedure - Alternative verdicts - Accused charged with F housebreaking but convicted of malicious damage to property - Whether conviction is proper - Criminal Procedure Code, ss. 181 - 188.
-Headnote
The two appellants were charged with housebreaking and stealing a radio cassette but G they were only convicted of stealing the radio; the first accused, however, was also convicted of malicious damage to property. The convictions were based on circumstantial evidence. The finding for malicious damage to property was based upon a H finding that the first accused was a resident of the house from where the radio was stolen and he stole it without having to break in or out of the house, but he intentionally damaged the rear door to make it appear that someone else had broken the door and stolen the radio.

Held: The powers of convicting a person for an offence other than the one charged are I laid down by statute and they do not include a power to
1985 TLR p194
MAINA J
return a verdict of malicious damage to property for a charge of housebreaking; A
Case Information
Order accordingly.
Case referred to:
1. R. v Anyandwile Mwaikusa [1968] H.C.D. 270 B
A.T. Akaro, for the Republic.
Judgment
Maina, J.: These two appeals are consolidated. The two appellants, C Hamisi Ally and Mesco Lucas, who I shall refer to respectively as the first and second accused, were charged at the Tanga District Court of two counts: house breaking and stealing. The learned trial magistrate acquitted them of house breaking but he convicted them of stealing and sentenced each of the accused to three years imprisonment. The D first accused was, in addition, convicted of malicious damage to property and he was sentenced to six months imprisonment, to be served concurrently with the sentence for the second count.
The evidence adduced by the prosecution showed that the first accused was staying at E the house belonging to PW.1 Philip Kitenge. On 17.6.1980, PW.1 Philip Kitenge left the first accused at the house and there was a Radio which was Government property which PW 1 Kitenge was using in the course of his duties as a Ward education coordinator. In the evening when Kitenge returned to his house the Radio cassette was not there. The first accused too was missing. Kitenge found out that the rear door of his F house was broken. There was further evidence that on the morning of 17.6.80 - the day the Radio Cassette was stolen, PW3 Idi met the two appellants on a bicycle and on that bicycle there was a bundle wrapped in a sack. About two days later, on G 19.6.1980, PW4 Hassan met the second accused carrying a bundle wrapped in a sack and the witness saw the second accused putting gave a Radio Cassette to the second accused. Then the witness went away leaving the appellants together.
The appellants, in their memoranda of appeal have repeated the defence which they gave H at their trial. The evidence against them was wholly circumstantial and it was considered carefully by the learned trial Magistrate. There could be no doubt that the first accused disappeared from the complainant's house and that was on the morning of 17.6.1980 when the theft was committed. The fact that the first accused was seen riding a bicycle that morning and carrying a bundle which later was found to contain the stolen I Radio Cassette leaves no reasonable doubt that
1985 TLR p195
MAINA J
bundle in a house which the witness knew had been abandoned for a long time. This A made PW4 Hassan suspicious. He interrogated the second accused who claimed that he saw a Radio

Cassette. The second accused was arrested and finally PW1 Philip Kitenge identified the Radio Cassette as the one stolen from his house.

The first accused denied the charge and also denied that he ever travelled with the B second accused on a bicycle on the morning of 17.6.80. The second accused said that he received the radio - cassette from the first accused. He called a witness, DW3 Daudi who claimed that he saw the first and second accused on 17.6.1980 and that the first C accused doubt the first accused was the thief. There was absolutely no reason to disbelieve PW3 Idi who met the first accused riding that bicycle. As far as the second accused is concerned, apart from the evidence of PW.3 Idi, there is the evidence of PW4 Hassan who saw the second accused only two days after the theft, carrying the stolen Radio cassette in a sack. The evidence by DW3 Daudi was unbelievable. There D was no reason for the first accused to pick a radio cassette form the ground and hand it over to the second accused.

On the evidence on record, there could be no doubt that the two appellants were properly convicted of stealing the Radio cassette and since the stolen property belonged E to the Government, the sentence of three years imprisonment was the minimum under the law.

The learned district magistrate held that the first accused had intentionally damaged the rear door of the complainant to fake a breaking, and so he convicted the first accused of malicious damage to property. I would agree that since the first accused was resident of F that house, he stole the Radio Cassette without having to break in or out of the house. It is clear that he pushed the rear door with some force and caused damage to it so as to make it appear that someone else had broken the door and stolen the radio-cassette. But the point is whether there was any justification for the trial Court to substitute a G conviction for malicious damage to property when the charge was housebreaking. The powers of returning a conviction for an offence other than that charged are expressly laid down in section 181 of the Criminal Procedure Code. It certainly cannot be said that any of these section empowers a Court to substitute a conviction for malicious damage H for housebreaking. In R. v Anyalwile s/o Mwaikusa [1968] H.C.D. No.270 the accused was charged with house breaking but the Court convicted him of malicious damage. In quashing the conviction, Georges, C.J. (as he then was) said:

> There are no specific provisions empowering a Court to convict under section 326 (1) where a I charge has been laid under Section

294 (1). It cannot be said either that section 294 (1) creates an offence consisting of A several particulars, a combination of some only of which constitutes the offence created under Section 326 (1).

With respect, I agree that the Court cannot convict a person of malicious damage to B property when the charge is one of housebreaking because there are no specific provisions in the Criminal Procedure Code giving the Court powers to do that. I would therefore, for these reasons quash the conviction for malicious damage and the sentence of six months imprisonment imposed on the first accused is set aside. The appeals are, C save as indicated above, dismissed.

D Order accordingly.

E

[zRPz]REPUBLIC v KARIMU TAIBALE 1985 TLR 196 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

April 21, 1982
CRIMINAL REVISION 6 OF 1981
Flynote
Criminal Practice and Procedure - Charges - Defective charges - Charge citing wrong offence and wrong or non-existent provisions of the law - Effect. F
Criminal Practice and Procedure - Pleas - Plea of guilty to a defective charge - Whether the plea is unequivocal
-Headnote
The accused person pleaded guilty to a charge which cited wrong as well as non-existent provisions of the law. He also admitted the "facts as charged". A plea of guilty was G entered by the trial court and the accused was convicted accordingly. But the particulars of the charge disclosed various distinct offences under different laws. On revision:
Held: The charge was so fundamentally defective that the accused could as well have H been admitting different offences in the same count and his plea cannot be taken to have been unequivocal;
Cases Information
Conviction quashed. I
No cases referred.
1985 TLR p197
SISYA J
A.T. Akaro, for the Republic. A
Judgment
Sisya, J.: This Court has, in the past, expressed desirability for Magistrates to go through the charge before admitting the same and reading it over to the accused. The idea behind this exercise being that if a clearly defective charge, i.e. a B charge with wrong sections of the law or faulty wording, is presented then the prosecutor may be given a chance to rectify the mistakes before the same is read over to the accused. Needless to say the exercise will serve no purpose if, in the case of errors, no correction is made.
In the matter currently before me the accused, Kalimu Taibale, appeared before the C Senior Resident Magistrate, Tanga, to answer to a charge containing three counts charging him with driving a defective motor vehicle on the public road; failing to carry a certificate of registration; and using a motor vehicle on the public road without a valid certificate of insurance, respectively. The first two are offences under the Road Traffic D Act, no. 30 of 1973. The section and law cited in respect of the third count in the charge as laid is section 6 A (1) and (2)

of the Finance Act, No. 12 Part X1/73. The charge is shown to have been "Okayed" by the learned Senior Resident Magistrate.

I have gone through the laws but I have not been able to lay my hands on or set my eyes E upon the law cited in the charge. The Finance Act which was passed in 1973 is actually no. 10 and not 12 of 1973. Part X1 thereof deals with amendments to the Tobacco (Imposition of Tax) Act 1970. Act no. 12 of 1973 is the Acquisition of Shares (Aluminium Africa Company Limited) Act, 1973). Neither of these talks of or has F anything to do with certificates of insurance for motor vehicles.

The wording of the offence in count three is also a misnomer. The correct and proper wording or title of the offence is failure to display on a motor vehicle a certificate of insurance issued in respect of such motor vehicle. This is an offence under Regulation 3 G (1) of the Road Traffic (Display of Certificate of Insurance) Regulations 1974, GN 119 of 1974.

As I think has sufficiently been demonstrated, the offence, section and law quoted in count 3 are, thus, all wrong. That, however, as I will now endeavour to show, is not the end of the story. Forgetting, for the moment, the section and law quoted in the count H under querry the wording of the offence, namely using a motor vehicle on the public road without a valid certificate of insurance against third party risks at all. If so then this is an offence under section 4(1) of the Motor Vehicle Insurance Ordinance, Cap. 169 and one would have expected the accused to have been charged under that law. He was I not. However upon reading the particulars of offence it becomes apparent that the accused actually did have a certificate

of insurance on his motor vehicle but the same had expired six months previously. This A is an offence under Regulation 3(2) of GN 119 of 1974. Still forgetting about the section and law quoted in count three, the offence and particulars of offence supposedly in respect of one and the same offence are, actually, in respect of two separate and distinct offences: One, failure to insure a motor vehicle against third party risks - this is B disclosed in the title of the offence - and, two, displaying a certificate which has ceased to be valid - this is clear from the particulars of offence.

The record of proceedings shows that when he was called upon to plead the accused simply replied, "True" to the third count as he is also shown to have done in the other first two counts. A plea of guilty was then entered and when the Public Prosecutor was C called upon to narrate the facts he is recorded to have said, "Facts as charged".

The question that has occupied my mind in this exercise in revision is whether the accused's plea was proper. The learned State Attorney, Mr. Akaro, submitted that it is not unequivocal. I respectfully agree. For reasons already disclosed I am of the firm D view that the charge in count three was defective and that the said defect was fundamental. In so far as the accused could have been admitting two different offences in the same count his plea cannot, under any stretch, be said to have been unequivocal. E

For these reasons the subsequent conviction in count three cannot be allowed to stand. The same is hereby quashed and the sentence passed thereon is, accordingly, set aside. The fine of Shs.600/= which was paid should now be refunded to him.

Mr. Akarro, the learned State Attorney, urged the Court to order a retrial. I, however, F do not feel disposed to make such an order as the matter is now, as it were, almost stale. I, however, leave it to the Public Prosecutor to make up his mind whether or not to proceed with the matter.

Finally, this Court wishes to emphasize, once again, the desirability of magistrates to go G though the charge before admitting the same. Such an exercise should not be done perfunctorily but diligently and for a purpose.

H Conviction quashed.

1985 TLR p199

A

[zRPz]EMMANUEL MOLLEL v REPUBLIC 1985 TLR 199 (HC)

Court High Court of Tanzania - Tanga

Judge Sisya J

September 29, 1982

(PC) CRIMINAL APPEAL 6 OF 1981

Flynote

Criminal Practice and Procedure - Assessors - New set of assessors proceeding with a B case commenced with other assessors - Whether court properly constituted.

-Headnote

The appellant was found guilty before a Primary Court and was convicted accordingly. C The finding was by a unanimous decision of the presiding magistrate and two assessors. But the two assessors who sat with the magistrate at the time of convicting had taken over in the hearing of the case from another set of assessors who had heard the case from beginning but did not continued with it to the end. The presiding magistrate, however, was the same from the beginning to the end. D

Held: There is no provision under the law which allows the substitution of a fresh set of assessors for the original set in the same case and the substitution made in this case rendered the court which finally disposed of the case not properly constituted. E

Case Information

Appeal allowed.

Case referred to:

1. Dominico Simon v R. [1972] H.C.D. 152 F

W.R. Mramba, for the appellant.

Judgment

Sisya, J.: The short point of law raised in this appeal is, whether G when the Mjesani Primary Court of Muheza District resumed the trial of the appellant on 12.5.81 with a new set of assessors the trial Court was lawfully constituted.

The record of proceedings of the trial Primary Court shows that trial of the appellant commenced on 30.4.81 with E.P. Magula, Esq. Primary Court Magistrate, presiding H and Rashidi Rajab and Bayagayana Pyugula as assessors. Two witnesses including the complainant herself gave evidence. The case was then adjourned to allow the complainant time to bring her witness, one William Msengi, who, for unknown reasons had failed to turn up on that day. When the trial resumed on 12/5/81 Mr. Magula was I still the presiding Magistrate. The assessors this time, however, were Kassimu and Enock Mkumbo. Only one witness, William

Msengi, gave evidence and the complainant closed her case. The appellant elected not A to say anything whereupon, after summing up, the Court proceeded to judgment. The appellant was found guilty by a unanimous decision of the presiding Magistrate and the "assessors" and he was convicted as charged and he was sentenced to pay shs.1,000/= fine or to go to jail for six months. He paid the fine. B

The appellant who was represented by learned Counsel, Mr. Mramba, raised the same point, among others, through his same advocate on first appeal before the District Court. In dealing with this point the learned District Magistrate, on first appeal, directed himself in the following terms, and I quote from his judgment: C

> It is true that the assessors were changed but after considering the circumstances of this case I find that the error caused no failure of justice in determining the case as I feel that the decision was just and fair as if the assessors were the same. D

With respect, in arriving at the conclusion which he did in this case I do not feel that the learned District Magistrate proceeded on the right premise. The material question before him on first appeal, and now on second appeal, is not whether or not justice was E done but rather whether the Court which finally disposed of the case was, in law, properly constituted. The situation in the instant matter regarding the position of assessors in the Primary Court is almost on all fours with that in the case of Dominico Simon v R. [1972] H.C.D. 152. In that case, just like in the instant matter, the two F original assessors were replaced by others who did not hear all the evidence presented during the course of the trial. El-Kindy J. (as he then was) expressed the view that the fresh set of assessors could not be substituted for the original set of assessors. The position remains the same even if the accused person did not raise any objection at the G time of substitution. With this I most respectfully agree. It must be conceded that there is no provision in the Magistrates' Courts Act, 1963, covering such an eventuality as the one before this Court in the present appeal. I am, nevertheless, by far, not persuaded that it is proper for a fresh set of assessors to be substituted for the original one. If this were to be permitted then some valuable material - the demeanour of both accused and H witnesses included - would easily escape their knowledge and consequently affect the just determination of the case.

In the Simon case quoted above El- Kindy J. declared the proceedings a nullity. With respect, I hold that that was the only matter. This is because when the Court of first I instance resumed the trial on 12.5.81 and the presiding Magistrate sat with a new set of two assessors
1985 TLR p201
the Court was not lawfully constituted, properly so-called. This appeal succeeds on this A ground. The conviction is quashed and the sentence is set aside. It is noted that the appellant paid the fine. It is hereby ordered that the same shall now be refunded to him.
I have left the question of trial de novo open to whoever between the Republic and the complainant may be interested to pursue the matter further. B
This appeal succeeds to that extent indicated.
C Appeal Allowed
1985 TLR p202
D
[zRPz]REPUBLIC v SEMPETO VINCENT 1985 TLR 202 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

April 21, 1982
CRIMINAL REVISION 8 OF 1981
Flynote
Criminal Practice and Procedure - Reconciliation - Power of the court to order E reconciliation in lieu of penalty - Whether court may order reconciliation in respect of a felony - Criminal Procedure Code, s. 134.
-Headnote
The accused, aged 12, pleaded not guilty to a charge of doing grievous harm contrary to F s. 225 of the Penal Code. On the day fixed for hearing, the court, endeavouring to foster reconciliation under s.134 of the Criminal Procedure Code, ordered stay of the proceedings pending the outcome of the reconciliation. In the end, the court ordered G payment of sh.300/= as compensation by the accused's father. The High Court revised the proceedings.
Held: (i) The offence of doing grievous harm contrary to s. 225 of the Penal Code is a H felony and therefore it is outside the scope of those offences in respect of which the court may promote reconciliation in lieu of a penalty;
(ii) the court had no power to promote reconciliation in this case and therefore the trial court magistrate, his good intentions notwithstanding, acted in excess of I jurisdiction;
1985 TLR p202
Case Information
Order accordingly. A
No cases referred to.

Editorial Note: The Penal Code (Amendment) Act, No. 14 of 1980, s.2 abolishes the distinction between felonies and misdemeanours 'in the Penal Code and any other written B law." It is provided that any reference to a felony or misdemeanour shall be construed as a reference to "an offence". However, this provision has some practical problems. The learned judge makes no reference to this provision in this case. It will also be noted for example that s.388 of the Penal Code provides for punishments of accessories after C the fact to felonies and s. 389 provides for punishments of accessories after the fact to misdemeanours. Many other examples can be given to illustrate that the distinction between felonies and misdemeanours is still of practical significance. D

Judgment

Sisya J.: On 16.2.81 the accused person, Sampeto s/o Vincent, a twelve year old school boy, appeared before the District Magistrate, Pangani, and pleaded not guilty to a single count charging him with doing grievous harm contrary to section 225 of the Penal Code. Hearing was then fixed on 4/3/81 "in a juvenile Court". E

Hearing did not proceed as scheduled. Instead the learned District Magistrate made the following order and I quote from the record of proceedings:

Order: The Court having explained to the parties the procedure of reconciliation u/s 134 of F C.P.C. The parents have undertaken to go back and try to be reconciled. So the trial is suspended pending the outcome of the conciliation. Case to be mentioned on 25/3/81 and accused's bail extended.

On the date fixed for mention the complainant's father is recorded to have informed the G District Magistrate that he and the mother of the accused had failed to agree on the amount payable to him, apparently, as compensation. He wanted sh.300/= whereas she was prepared to pay only a third of that. Finally, the learned Magistrate made the H following order:

Sh.300/= to be paid by the accused's father within a period of 3 months from now and should he fail to do so the amount shall be levied from him in the normal manner. I

1985 TLR p203

SISYA J

Section 134 of the Criminal Procedure Code under which the learned District Magistrate A purported to act provides as follows:

134. In the case of proceedings for common assault or for any other offence of a personal or private nature not amounting to felony the Court may, if of the opinion that the public interest B does not demand the infliction of a penalty, promote reconciliation, and encourage and facilitate the settlement, in an amicable way, of the proceedings on terms of payment of compensation or other terms approved by the Court, and may thereupon order the proceedings to be stayed. C

The offence of doing grievous harm contrary to section 225 of the Penal Code is a felony and therefore it is outside the scope of section 134 of the Criminal Procedure Code. Although, on my part, I have no doubt whatsoever as to the learned District D Magistrate's good intentions in his endeavour to foster reconciliation between the parties to this proceeding I, however, regret to say, which I must, that in doing what he did the learned District Magistrate acted in excess of

jurisdiction. He simply had no power to promote reconciliation in this case where the offence allegedly committed is a felony. E The end result is that all his exercises towards reconciliation were a nullity ab initio and they are hereby so declared. The same are quashed and set aside.
I take judicial notice of the fact that the District Magistrate concerned, Mushumbusi Esq., has since ceased to exercise jurisdiction in Pangani District by reason of transfer to F another District. In the event it is hereby directed that the record should now be sent back to Pangani with directions that the matter proceeds before any other Magistrate of competent jurisdiction according to law.
G Order accordingly.
1985 TLR p204
A
[zRPz]AHMED ISMAIL v JUMA RAJABU 1985 TLR 204 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

August 22, 1982
CIVIL CASE 19 OF 1981
Flynote
Civil Practice and Procedure - Jurisdiction - High Court District Registries -Suit instituted at B Tanga Registry while the defendant resides, and the cause of action arose within the area of the Arusha Registry - High Court Registries Rules, 1961.
Family Law - Customary Law - Marriage under customary law - Cohabitation and public admission of responsibility for pregnancy - Whether enough to constitute marriage under C customary law - Law of Marriage Act, 1971.
Torts - Damages - Child's education cut short due to pregnancy - Whether parent can claim damages. D
-Headnote
The plaintiff made Maimuna, the defendant's daughter who was a student at a Teachers' Training College, pregnant. As a result her College training was cut short. The plaintiff admitted responsibility for the pregnancy and was consequently made to pay some money at an elders' baraza which convened and proceeded according to local customs E and traditions. Maimuna remained with her parents at Same until four months after delivery. She then joined the plaintiff at Tanga and they lived together and cohabited for six months after which she, along with the baby, went back to her parents. Some weeks later, the defendant refused to allow Maimuna to re-join the plaintiff insisting that his F daughter was not married to the plaintiff. The plaintiff then filed this suit in the High Court at Tanga, where he resides, claiming damages for enticement of his spouse. The defendant counter-claimed Shs. 3,500/= as "damages for loss of expectation" and expenses incurred on his daughter's education until it was cut short. He also raised a G preliminary point that the plaintiff ought to have filed the suit at the Arusha

Registry of the High Court which is the registry for the area in which he, the defendant, was resident and the cause of action arose.

Held: (i) According to the High Court Registries Rules, 1961, original proceedings in H the High Court may be instituted in the Registry at Dar es Salaam or in the District Registry for the area in which the cause of action arose or the defendant resides; as Same District, the district where the cause of action arose and the defendant resides is within the area for which the District Registry is Arusha, the suit should have been filed at I the Arusha Registry;

1985 TLR p205

SISYA J

(ii) a marriage certificate, or an entry in a marriage register is prima facie A evidence of marriage and s.43(5) of the Law of Marriage Act, 1971, imposes a duty on parties to a customary law marriage to register the marriage; the plaintiff, who claims to be married to the defendant's daughter under customary law, failed to perform that statutory duty, and he also failed to give any evidence to show that he was ever married as he claims; B

(iii) making an unmarried girl pregnant and marriage under customary law rites are two different and separate issues which must be viewed and treated as such; the mere fact that the plaintiff made the defendant's daughter pregnant does not mean that he was married to her;

(iv) cohabiting, as the plaintiff did with the defendant's daughter and with the C defendant's acquiescence from December 1980 to June 1981, is, in the absence of evidence of marriage, not sufficient to raise any presumption of marriage under s.160(1) of the Law of Marriage Act, 1971;

(v) maintaining and educating a child is always the responsibility of the parent D and in educating his daughter the defendant was simply discharging his duty; as such there is no loss upon which his counter-claim can be based;

Case Information

Order accordingly. E

No. cases referred to.

Judgment

Sisya, J: In this action the Plaintiff 'Son-in-law' is seeking to recover F from his respondent 'father-in-law" Shs 21,000/= representing damages for enticement of his spouse, plus costs of the suit. The defendant has denied liability to pay the said damages on the ground that his daughter is and/or was, at the material time, not married to the plaintiff. He has also counter-claimed the sum of shs.3,500/= being G "damages for loss of expectation and School expenses which occurred when the plaintiff made the defendant's daughter pregnant and unable to proceed with her studies".

Para 7 of the written statement of defence raises a preliminary point. It reads and I quote. H

7. That the cause of action arose at Makanya in Kilimanjaro Region in the High Court Registry of Arusha and not Tanga.

It is common ground that the defendant resides at Makanya in the Same District of I Kilimanjaro Region; that the alleged marriage between the plaintiff and the defendant's daughter was solemnised at Makanya;

and even the wrong complained of was committed at Mkanya. It is only the Plaintiff A who resides at Amboni in the District and Region of Tanga:

5. As regards para 7 the Plaintiff states that the High Court has jurisdiction all over Tanzania save the area under High Court of Zanzibar. B

True. There is only one High Court of Tanzania whose area of jurisdiction extends throughout Tanzania save, of course, the isles. The Plaintiff, however, missed the point. Rule 5 (1) of the High Court Registries Rules, 1961, as amended by Rule 3 of the High Court Registries (Amendment) Rules, 1963, provides as follows: C

5. (1) Original Proceedings in the Court may be instituted either in the Registry at Dar es Salaam or in the District Registry (if any) for the area in which the cause of action arose of where the defendant resides. D

In terms of Rule 2 of the Principal Rules "the Court" here means the High Court. Rule 3 reads: E

In addition to the Registry at Dar es Salaam there shall be a District Registry at such places and for such areas as are set out in the schedule to those Rules ..... F

The said Schedule, as deleted and replaced by the High Court Registries (Consolidation) Notice, Government Notice 194 of 1974, the place of registry for all areas in Tanga Region is Tanga whereas the place of registry for all areas in the Kilimanjaro Region including, if I may say so, Makanya is Arusha. It, therefore, goes without saying that the proper place for suing in the instant matter is, of course, Arusha. By filling the suit at G Tanga the Plaintiff, therefore, erred. I am, however, satisfied that the error has not occasioned any miscarriage of justice

Without prejudice to the foregoing the case for the Plaintiff is that towards the close of 1979 he fell in love with one Maimuna, the defendant's daughter. It is not disputed that H the said Maimuna who, incidentally, did not give evidence at the trial for either or both parties was then pursuing a teaching course. The two of them engaged themselves in premarital intercourse and this resulted in her becoming pregnant. According to the Plaintiff she then urged him to pay dowry to the defendant so that the two of them could marry. Eventually a Baraza was convened at which the defendant agreed that his I daughter should marry the Plaintiff. He, i.e.

defendant, demanded a cow as dowry. The Plaintiff, however, paid out cash shs. 300/= A which represented a cow meant for Maimuna's mother according to the tradition and custom of the Wapare, a tribe to which both parties belong. He was also required to pay and he, in fact, paid shs.50/= as Mazoka and a further shs.173/= for clothing his bride. Thereafter the defendant told him that he could pay the rest of the dowry by B instalment. He, i.e. the defendant, also agreed to continue to accommodate Maimuna until the end of her pregnancy. He, however, announced that Maimuna was the Plaintiff's wife.

The Plaintiff told the Court that in August, 1980 his 'wife', Maimuna, delivered. He paid C for all the delivery expenses. Maimuna and the child, however, continued to stay at the defendant's

home until December, 1980, when the Plaintiff went and collected her and took her to Tanga where they cohabited peacefully. While at Tanga their child contracted a disease which defied treatment by local medicinemen. Eventually, upon D agreement between the Plaintiff, his wife, Maimuna, and the Plaintiff's mother, one Asha Sekondo (PW5) who happened to be staying with them at the material time, Maimuna took the child back to Makanya for further management by traditional medicinemen. She left on 10/6/81. While at Makanya she opted, with the Plaintiff's consent, to stay at E her parent's home, i.e the defendant's place. The Plaintiff stated in his evidence that he followed his family at Makanya a couple of weeks later. On his arrival he found his child in good health. It had improved. He then told the defendant that he was going back with his wife. The defendant turned down this proposal. He added that at most the Plaintiff could take along with him his own child only whereas he, i.e. the defendant, F himself remained with his own, i.e. Maimuna. The matter was referred to the local elders but the defendant remained adamant. He insisted that each one of them, that is to say the Plaintiff and Maimuna, should go his or her own way. He, i.e. the defendant also demanded a refund of shs.3,500/= which he claimed represented the cost of educating G Maimuna up to the time the Plaintiff made her pregnant. Eventually, the Plaintiff brought up this suit.

The defendant, in his defence, told the Court that his daughter, Maimuna, was dismissed from the Teachers' Training College, Tabora, where she was undergoing training to became a teacher because she was pregnant. Upon making enquiries he discovered that H the plaintiff was responsible for the said pregnancy. He made effort to contact the Plaintiff through the latter's father, Ismail Mshihiri, and uncle, Earnest Mshihiri. Eventually the Plaintiff responded to his elders' call. When questioned he conceded that he was responsible for Maimuna's pregnancy. The defendant then demanded what is I traditionally known as Ng'ombe wa Mama (a head of cattle meant for the pregnant girl's mother). He also

demanded a refund of all the monies which he had spent in educating Maimuna and A which he assessed at shs.3,500/=. According to the defendant the proceedings of the meeting which was held in connection with this matter were recorded on a piece of paper which was tendered as Exh.P.3.

One Rajab Juma (DW4) said that he was the one who recorded the first portion thereof. B The rest was recorded by Earnest Mshihiri (PW2). PW2, however, denied this.

According to the said piece of paper the defendant was claiming from the Plaintiff compensation for deflowering his daughter as well as making her pregnant, traditionally known as Nyeku and Mazoka. He also demanded a refund of what he had spent in C educating his daughter. The amount was then shs.1,750/=.

The defendant told the Court that what he had actually said was that he was prepared to accept shs.1,750/= only if the Plaintiff was prepared to pay there and then. D

The Plaintiff paid shs.350/= representing Mazoka and the girl's mother's cow. Maimuna delivered in August, 1980, while she was still at her parent's home. No maintenance for

Maimuna and her child was forthcoming from the Plaintiff. The defendant told the Court that round about the same time his wife fell sick. It then became increasingly difficult for E him to maintain his sick wife as well as Maimuna and her child. He talked over this problem with his own father and eventually the two of them agreed that the plaintiff should be made to maintain his child. According to the defendant the quickest and simplest way of putting this into effect was to permit Maimuna to take the infant to its F father, the plaintiff, which he did. Maimuna then went and, as it were began to cohabit with the plaintiff. The two of them were not married but, so that defendant said, they were simply living together to look after their child. Later Maimuna returned with the child and informed him that the child was not enjoying good health. Subsequent G diagnosis revealed that the child was a victim of malnutrition. The defendant resumed maintenance of the child but later complained to the plaintiff's relatives. It was then decided that the plaintiff should make monthly remittances of shs. 70/= towards the maintenance of the child. This was done for two months only and the plaintiff defaulted again. H

The defendant told the Court that finally he summoned the Plaintiff's father and told him the plaintiff's short-comings. He also reminded him of his claim for a refund of expenses for Maimuna's education. Plaintiff's father advised the defendant to refer the matter to Court. He then filed a suit against the plaintiff in Makanya Primary Court. He tendered the I

official receipt on which the requisite Court fees were collected as an exhibit, Exh."I". A The said suit was subsequently withdrawn after the plaintiff had pledged to marry Maimuna. The next thing the defendant saw in connection with the matter was Court summons and a copy of the plaint in this suit.

Both the plaintiff and the defendant called witnesses on their respective sides. Those B who gave evidence on the plaintiff's side, including his uncle, PW2, and mother, PW5, gave evidence to the effect that the marriage between the plaintiff and the defendant's daughter was solemnised under customary law. The evidence of the defendant and his witnesses is to the effect that no such marriage was or has ever been solemnised C between the said two persons.

It is common ground that the marriage between the plaintiff and Maimuna, that is if there is any, was not registered. No marriage certificate was tendered in evidence and chances are that none was ever issued. It is, likewise, now common knowledge that no D dowry in any form, or any part thereof, was and/or has been paid by the plaintiff.

The second issue as drawn is whether there was any marriage between the plaintiff and the respondent's daughter. The onus of proof here, naturally, lies on the plaintiff. It must be conceded that under the Law of Marriage Act both payment or nonpayment of E dowry and failure to register the marriage do not effect the validity of marriage; see Section 41(a) and (h). The defence raised by the defendant in the instant case is, however, not that the marriage was not registered and/or that no dowry has ever been paid but, as aforesaid, rather that there has never been any marriage between the F supposed spouses at all. In terms of section 55 a marriage certificate or an entry in any register of marriages is prima facie evidence of marriage.

Section 43, and in particular, sub-section (5) imposes a duty on parties to a marriage contracted according to customary law rites to register the marriage with the registrar or registration officer G concerned. The plaintiff obviously did not perform this duty and no reason has been given for his failure to do so. Now those who, deliberately or otherwise, fail to perform their duty imposed by the law itself and/or fail to follow the laid down and accepted procedures can only have themselves to blame when things turn against them. I have had the chance of seeing and observing the plaintiff during the several occasions he H appeared before me at the hearing of this suit. He is by no means a raw citizen. One wonders, therefore, what reasons he has for failing to register the marriage, that is to say, if, indeed, there was any solemnised. As the position stands what evidence, it may be asked, is there to show that he and Maimuna ever underwent a ceremony of marriage I albeit according to customary law rites? Of course, in fairness to the plaintiff, there is his own word of

month as well as the word of mouth of his witnesses to the effect that the said marriage A was solemnised. On the other hand there is also the word of mouth of the defendant and of an almost equal number of his witnesses to the effect that no such marriage was ever solemnised and that the ceremonies that were performed were in connection with the pregnancy which the defendant's daughter had outside wedlock and for which the B plaintiff was responsible. On my part I see no reason why I should prefer the evidence of the plaintiff and his witnesses to that of the defendant and his witnesses. The end result is that the plaintiff has failed to prove that he and the defendant's daughter, Maimuna, contracted any marriage according to customary law rites. C

It seems to me that the plaintiff and his witnesses are confusing the issue of making an unmarried girl pregnant and that of marriage under customary law rites. These are two different and separate issues and they must be viewed and treated as such. The mere fact that a man has made a girl pregnant does not, ipso facto, mean that he is married to her. D

There are another factors in the instant case which satisfy me the more that no marriage was indeed contracted between the plaintiff and the defendant's daughter. One of this is that it is common ground that dowry is an accepted and essential element of customary law marriage among the Wa-Pare. It is in evidence, which stands uncontradicted and E unshaken, that the minimum amount of dowry payable among the Wa-Pare is four head of cattle and two goats. The plaintiff and all his witnesses, his own mother (PW5) and Mshenga (PW2) included, miserably failed to pronounce how much dowry was demanded let alone paid. It is inconceivable that talks could be had on marriage without F mention of how much dowry was being demanded or payable. This is far and apart from the mode and style of payment. Another factor is that it sounds inconceivable to me that after contracting the alleged marriage the plaintiff could have deemed it fit to allow his "wife" to continue staying at her own parent's home. The plaintiff himself said G that it was because she was pregnant. Indeed she was, so what? It is possible that the plaintiff may have felt that it was inadvisable for Maimuna to travel to Tanga in the condition in which she was. If so then, why, it may be asked was she not told to

move to his own parent's home? It is in evidence which is undisputed and which I accept that H the defendant and the plaintiff's parents are neighbours. In fact they live under the same cell of ten houses! Upon contracting the marriage, if indeed it was, then surely Maimuna could have comfortable walked over to the home of the plaintiff's parents and the plaintiff's mother (PW5) would have been available if need arose for her assistance. Finally, even when Maimuna returned to Makanya with the sick child, she stayed at the I defendant's place. Again, I see no

justification at all for this arrangement other than proof of lack of any marriage contract A between the plaintiff and Maimuna.

As aforesaid the defendant told the Court that he permitted Maimuna to go and cohabit with the plaintiff simply to ensure that the latter maintained his child. In all the circumstances this explanation sounds plausible. The tendency among many young B men of today to ignore their off spring living with their mothers, and away from themselves, is a fact too notorious to escape judicial notice of this Court. It must, therefore, be found as a fact, which I do, that from December, 1980 to June 1981 Maimuna did cohabit with the Plaintiff. In the absence of evidence of marriage the period is, unfortunately, too short to raise any presumption of marriage under section C 160(1) of the law of Marriage Act, 1971.

As a parting shot, although the plaintiff looks fairly knowledgeable and recalled several dates, he did not mention the date he claims Maimuna married him. None of his witnesses too disclosed the date of marriage. For the aforegoing reasons and on the D evidence adduced in this case I am far from persuaded on a preponderance of probabilities, that there ever was any customary law marriage, or marriage of any other form, between the plaintiff and the defendant's daughter. This is enough to dispose of all the plaintiff's claims against the defendant because the former has no right to damages for E enticement even if I were to assume - which of course I do not - that the defendant did, indeed, allure his daughter, Maimuna into leaving and/or abandoning the Plaintiff.

I now turn to the counter claim. By it the defendant seeks to recover the money which he spent on Maimuna's education. The basis of such a claim is that the claimant has F suffered some loss. It must be conceded that in the normal circumstances maintenance of infant children is the responsibility of the father. It is also the duty of the father to educate his children. By educating Maimuna up to the level which she had reached the defendant was simply discharging his duty under the law. Whatever happened to G Maimuna the fact of the matter remains that she is the defendant's child and she remains with the education or qualification which she managed to attain. The concept of loss upon which the defendant can properly base his claim does not, therefore, arise. For these reasons it goes without saying that the counter claim too is without basis and it also therefore fails. H

In the final event both the suit and the counter claim fail and the same are hereby dismissed. Each party will, however, bear his own Costs.

I Order accordingly

A

[zRPz]K. HASSANI v KITHUKU AND CHALI 1985 TLR 212 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

August 22, 1983
CIVIL CASE 22 OF 1981
Flynote
Torts - Defamation - Allegations of witchcraft uttered before villagers who believe in B witchcraft - Whether defamatory.
Torts - Defamation - Slander - Allegations of killing by witchcraft and possessing C instruments of witchcraft - Whether actionable per se.
Torts - Damages - Amount prayed for without showing any special damage suffered - General damages.
-Headnote
The plaintiff claimed damages for slander. It was alleged,and proved ex-parte, that the first defendant, claiming to have occult powers which enabled him to spot out and D emasculate those practising witchcraft, invaded the plaintiff's compound accompanied by a large crowd of villagers. He then announced to the crowd that the plaintiff had witchcraft powers and instruments with which he was killing the residents of the village, and that the food he used to prepare and serve his guests as Maulid celebrations actually E consisted of goats' excreta and baboon and hyena meat.
Held: (i) The allegations that the plaintiff practised witchcraft, uttered, as they were, to a crowd of villagers who believe in witchcraft, are the kind of words likely to expose the plaintiff to ridicule, hatred or contempt, and are calculated to injure him in his social F standing in his community; they are therefore defamatory;

(ii) while slander is not always actionable per se, the slandering in this case is so actionable because of the imputation that the plaintiff killed human beings, a crime punishable with death, and that he possessed instruments of witchcraft, a crime punished G by imprisonment under the Witchcraft Ordinance;
Case Information
Judgment for the plaintiff
No cases referred to. H
Judgment
Sisya, J.: This is an action for slander. It has been brought by the plaintiff, Karoyo Hassani, but prosecuted by his son, Juma Kumba, to whom he has donated a power of attorney on the I

grounds of his own old age, ill health and personal discomfort of attending the Court. A

The plaint is, to say the least, crude and home made. At most it could be the work of some aspiring bush lawyer. The donee of the power of attorney, i.e. Juma Kumba, himself appears, without being derogatory to him, to be as raw as the plaint. I chose to B accommodate him and his plaint all the same because his position is, to my mind, a true representation of the hard facts of our life and also because the said plaint discloses a cause of action. I fully subscribe to the view that substantive justice should never be sacrificed for mere technicalities of the procedural law. The words complained C of and which the first and/or second defendant uttered in relation to the plaintiff were to the effect that he, i.e. the plaintiff, was wizard; he has a two legged pot in his house which turned into snakes and bit people to death; he also has a drum which was made of the genitals of a woman and its drum stick was a male organ; and that the rice and meat D which he prepared and served guests whenever he celebrated 'Maulid' at his house were actually excrements of goats and meat of baboons, respectively.

Both respondents were duly served with copies of the plaint but they failed and/or neglected to file written statements of defence. The hearing, therefore, proceeded and/or was conducted ex parte. E

Three witnesses gave evidence on the side of the plaintiff. These were Juma Kumba (PW1), a neighbour of his, Msafiri Martin (PW2), and his i.e. Juma's older brother, Hamisi Kumba (PW3). Their story is the same and it reveals a somewhat disgusting and absolutely nauseating episode that befell the plaintiff at his own house on 22/8/81. From F the totality of their evidence it becomes clear that the first defendant is a native medicineman who claims to possess occult powers which enable him to spot out and emasculate those who practice witchcraft. During the relevant period he was moving from village to village, apparently on the invitation of the local residents and/or, to the G very least, with the connivance of the local village governments. According to PW3, the second defendant was first accused's companion.

On 22/8/81 during the morning hours the first accused was accompanied by a noisy multitude which was chanting "To Karoyo's!" The said multitude comprised males and H females, young and aged. Those in the frontline bore a coffin like object. They also carried with them some pails of water. Msafiri (PW2) saw and heard the crowd as it passed near his house at 6.00 a.m. He was then cleaning his teeth. Thinking that there was a funeral he, eventually, decided to and did follow the crowd. Juma (PW1) was I then at his father's house with his father, the plaintiff, when he heard and saw the crowd approach.

1985 TLR p214

SISYA J

The evidence of Juma and Msafiri, which stands unopposed, shows that when the crowd A arrived at the plaintiff's house the plaintiff got out of his house. According to Juma he followed suit because he was worried as he did not know where the 'dead body' was being taken to. The first defendant then ordered that the 'coffin' should be carried round the plaintiff's house fourteen times. This was done and then it was placed at the B plaintiff's door. At that stage the plaintiff querried as to what it was that they were doing to him. The first defendant silenced him by telling him to keep quiet, adding that he would see the outcome. Thereafter, the first defendant told girls who were in the crowd to go inside the house and urinate in the pails. This

they did and then their urine was C sprinkled at every corner in the room as kafara, i.e. for, as first defendant announced, neutralising purposes. After that the first defendant turned to the plaintiff and began to undress him in public. The plaintiff asked again as to what wrong he had done. The first D defendant's response was as at first: He silenced the plaintiff and added that he would see the outcome. The first defendant removed the plaintiff's cap, coat, kanzu and shoes. It seems the first defendant wanted to continue stripping the old man of his complete attire. According to Hamisi (PW3), who already had had a confrontation with the defendants in another village a few days earlier, he arrived at the plaintiff's house at the time when the latter was resisting having his shirt removed as well. Although he saw the E local village chairman, one Omari Hassani, and the local militiamen among the crowd the sight of the plaintiff being harassed by the first defendant embittered him. Fearing that he may, finally, be forced 'to take the law into his own hands' he left the place immediately and proceeded to the District Headquarters at Muheza and reported the F matter to the District Party and Government officials.

Juma and Msafiri told the Court that after the first defendant had succeeded in having the plaintiff's shoes removed he, i.e. first defendant, then addressed the plaintiff within their hearing, as follows: 'You are finishing Maramba residents. I will talk about your G wizardry so that the people may know about it well. The water and urine which the girls spilled in your house is kafara so that whatever you have inside there is neutralised'. After that the first defendant turned to the crowd and began to announce to them that there was a pot in the house which contained witchcraft; that there was a second pot H with two edges in the bed room; that the said two edges used to turn into vernomous or deadly snakes which bit people; that there was a small drum in the roof which was made of female genitals; that its drum stick was a penis; and that its purpose was for summoning all witches and wizards. After his address the first defendant turned to the plaintiff and asked him if he, i.e. first defendant, should take out all these instruments of I witchcraft from the house. The

plaintiff's reply was to the effect that since his permission had hitherto not been sought A there was no point in doing so at that stage. He added that the first defendant could proceed to do whatever he wanted to do. The first defendant said that he would not take the said things out on that day because circumstances were not favourable. He added that he would do so on the following day. B

Both Juma and Msafiri told the Court that the first defendant also told the plaintiff that the rice which he was preparing and feeding people during Maulid celebrations was no rice at all; it was goats' droppings, and the meat was not beef at all but meat of baboons and hyenas. According to Msafiri at this stage he became disgusted and he left and C went away. He, i.e. Msafiri, told the Court that he used to celebrate Maulid festivals at the house of the plaintiff whom he described as a respectable old man.

Juma (PW1) told the Court that the plaintiff urged that whatever could be done should be done there and then. The first defendant, however, remained adamant and insisted D that he would

take out the things, presumably for display and consequent destruction, on the morrow at 8.00. He, i.e. the first defendant, then announced to the crowd to disperse and return on the following day. Juma went on to tell the Court what happened to the plaintiff later that very evening, in the night, and on the following day. The said E facts, as also do some of those already narrated here in above, reveal and/or are relevant to the tort of trespass - both to the person and to property - which is not the subject matter, or a part thereof, of this instant proceeding. I, therefore, do not see the point of recounting them. Suffice it to say that had he so wished and/or so acted the F plaintiff could have properly brought up a suit for trespass as well in the present suit.

Be it as it may, as aforementioned, this suit was not contested. The defendants may have left it to their professed occult powers (or was it the girls' urine which was sprinkled in the plaintiff's house?) to neutralise the plaintiff's desire to seek legal redress and/or G protect them from the requisite law suit. If so then they must be living in a fools' paradise. As the position stands the evidence on the plaintiff's side remains unchallenged and uncontradicted and I have absolutely no reason whatsoever to disbelieve it.

I framed out four issues in this case and these are: H

1. Did the defendants, jointly or severally, utter the words complained of?
2. Are the said words defamatory of the plaintiff?
3. If they are, are they actionable per se? I
4. To what reliefs are the parties entitled?

1985 TLR p216

SISYA J

On the first issue I am satisfied, and I so find, that the first defendant did utter the words A complained of. There is, however, no evidence to show that the second defendant was present on 22/8/81 at the plaintiff's house. Hamisi (PW3) mentioned that he saw him, i.e. second defendant, in the company of the first defendant but that was at Daluni and not Maramba. The time was also different in that, according to PW3, that was B about five days before the incident at the plantiff's house. Juma (PW1) also talked of the first accused's companion or student. He, however, did not mention the name of the second accused. In the final event I find that the first defendant uttered the said words alone and I find this as a fact. C

Now, turning to the second issue, I entertain no doubt whatsoever in my mind that the words which the first defendant said of the plaintiff and which the latter has complained of are defamatory of the plaintiff. They are the type of words that are likely to expose the plaintiff to hatred, ridicule or, contempt or calculated to injure him in his social D standing in his community and I find this as a fact. There can be no doubt that these words were spoken to a crowd of villagers who believe in witchcraft - a scourge of our rural as well as part of the urban communities. Needless to say, this was done maliciously as the first defendant knew or had reason to know of the falsity of his words. In short, I answer the second issue in the affirmative. E

To put it briefly slander is or consists of defamatory matter merely spoken. Under common law, except in four cases, the plaintiff in an action for slander must prove special damage. The four exceptional cases are: F

1. Where the words impute to the plaintiff the commission of a criminal offence punishable by imprisonment.
2. Where they impute to him a contagious or infectious disease.
3. Where they are spoken of him as a professional or businessman.
4. Where they impute unchastity or adultery to a woman or girl. G

In the instant matter the words impute to the plaintiff the killing of human beings, of malice aforethought, which is a crime which carries capital punishment. The words also imputed to the plaintiff the possession of instruments of witchcraft, to wit, the two pots, H the drum made of a female organ and its male-organ drum stick, which is a criminal offence punishable by imprisonment under the Witchcraft Ordinance. The words that the plaintiff was practising witchcraft on his fellow residents of Maramba and that he had instruments for that purpose in his house will therefore, support an action for slander, I without special damage and I so hold. This disposes of the third issue.

1985 TLR p217

Finally, I now turn to the issue of the reliefs to which the parties are entitled. In his plaint A the plaintiff prays for Shs.25,000/= which he does not classify as general or special damages. The evidence produced does not show that the plaintiff suffered any special damage as a result of the slanderous words. In Winfield and Jolowicz on Tort, 9th B Edition, at page 249 and 250 the learned authors stated that "where there is no need to prove special damage in defamation, the plaintiff can recover general damages for the injury to his reputation without adducing any evidence that it has in fact been harmed, for the law presumes that some damage will arise in the ordinary course of things. It is enough that the immediate tendency of the words is to impair his reputation". This C passages describes the correct position at law on this aspect of the case so tersely that I, with gratitude, adopt it as my own.

Taking into account the fact that the plaintiff was, as described by Msafiri (PW2), a respectable old man who used to celebrate Maulid in accordance with his religious D beliefs and also the number of specific but false and malicious allegations made by the first defendant and, in all the circumstances of the case I am of the considered view that the amount of Shs. 25,000/= as general damages will meet the justice of the case.

In the final result I give judgment for the plaintiff as prayed with regard to the first E defendant. No case, however, has been made out against the second defendant. The claim against him is consequently dismissed. The first defendant will bear the costs of this suit.

F Judgment for the plaintiff.

1985 TLR p217

G

[zRPz]MWINYIHAMISI KASIMU v ZAINABU BAKARI 1985 TLR 217 (HC)

Court High Court of Tanzania - Tanga

Judge Sisya J

December 31, 1985
(PC) MATRIMONIAL APPEAL 3 OF 1982 H
Flynote
Family Law - Divorce under Islamic Law - Dissolution of marriage under Islamic Law - Wife obtaining divorce by self - redemption (khului) - Law of Marriage Act, 1971, s.107(3).
Family Law - Separation of spouse - Whether court may compel a spouse to live with the I other - Law of Marriage Act, 1971, s.40.
1985 TLR p218
Islamic Law - Divorce - Dissolution of marriage under Islamic Law - Wife obtaining divorce A by self- redemption (khului). - Law of Marriage Act, 1971, S.107(3).
-Headnote
The parties were married under Islamic Law and after living together for over 13 years, the respondent petitioned for divorce. The Primary Court dismissed the petition and her B appeal to the District Court was also dismissed. But the District Court magistrate advised that because theirs was an Islamic marriage, the respondent could still obtain divorce by redeeming herself (kujikhului) by returning the dowry which the appellant had paid and that this would be in accord with s.107(3)(c) of the Law of Marriage Act, C 1971. Subsequently the respondent applied to the court to redeem herself as advised, and her application was allowed ex-parte. The husband brought this appeal to the High Court.
Held: (i) In order for the court to make a finding that a marriage is irreparably broken D down and to grant a decree of divorce as per s.107(3) of the Law of Marriage Act, 1971, it must be proved firstly, that the parties were married under Islamic Law, secondly, that a Marriage Conciliation Board has certified its failure to reconcile the parties and, thirdly, that subsequent to the Board's failure to reconcile them one of the E parties has done an act which, under Islamic Law, is sufficient to terminate the marriage;

(ii) in order for s.107(3) of the Law of Marriage Act, 1971, to come into play, all the three things must be proved to the satisfaction of the court hearing the petition for divorce, and they must be proved before judgment is entered, not after; F

(iii) while it was established to the satisfaction of the court before judgment was entered that the parties were married according to Islamic Law and that the Conciliation Board had failed to reconcile them, the third requirement, that any one of them had done G an act sufficient to terminate the marriage under Islamic Law, was not so established;

(iv) even if the act of the respondent redeeming herself by returning the dowry could constitute an act to terminate marriage under Islamic Law, that act was legally ineffectual in this case because it was done after the court had pronounced judgment; H

(v) as s.140 of the Law of Marriage Act, 1971, does not empower any court to compel a wife to live with her husband or a husband with his wife, an application for an order to compel the respondent to return to the appellant cannot be entertained; I

Case Information
Order accordingly
1985 TLR p219
SISYA J
No cases referred to. A
L.G. Haule, for the respondent.
Judgment
Sisya, J.: The appellant and the respondent went through a B ceremony of marriage under Islamic rites on 13th November, 1967. During their thirteenth year of peaceful cohabitation a rift appeared in the union. After making unsuccessful attempts at reconciliation the respondent, eventually, went to Usambara Primary Court of Tanga District and petitioned for divorce.
The petition which the respondent filed in the Court of first instance is not dated, nor C does it show the date of presentation or filing. From an endorsement (the first one in the record of proceedings) in the case file it appears that the latter was done on 25/9/81. Be it as it may the grounds raised by the respondent in her petition for dissolution of the D marriage were two fold, namely cruelty both mental and physical, inflicted by the appellant on her and wilful neglect on the part of the appellant. In support of her claim the respondent who, incidentally, was the only witness on her side swore that there was no understanding of each other between herself and the appellant; that the appellant used to attack her, presumably physically, often; i.e. the appellant, used to pour abuses on her E including accusations that she was having incestuous relations with her own brother; and that he was not providing her with necessaries of life.
The appellant contested the petition and he denied the respondent's allegations. According to him he did everything that he could to please the respondent but the latter F would not care a jot. He provided her with necessaries of life. The only exception was when the respondent deserted the matrimonial home. According to the appellant he suspected that there was a man behind the misunderstandings in their marriage. He concluded by saying that he, nevertheless, was in love with his wife, the respondent.
By a majority decision the Court of first instance found that the respondent had failed to G prove her allegations and consequently establish that the marriage between herself and the appellant had irretrievably broken down. The Court, therefore, dismissed the petition. Aggrieved, the respondent appealed to the District Court.
The learned Principal District Magistrate on first appeal directed himself in the following H terms and I quote from his judgment:

> Nimechunguza kwa makini ushahidi wote uliotolewa mbele ya Mahakama ya Mwanzo, Mwomba rufaa (i.e. the respondent in this instant appeal) hakuthibitisha hata moja ya sababu I alizotoa na kutaka kuachana.

1985 TLR p220
SISYA J

The learned Principal District Magistrate dismissed the respondent's appeal. However, A before proceeding to do so the learned Principal District Magistrate had the following to say and, again, I quote from his judgment:

Kwa kuwa ndoa yao lilifungwa kwa mujibu wa dini ya Kiislamu, na kwa kadiri mambo yalivyo, B Mwomba rufaa anaweza kupata talaka kwa kujigomboa (khului) kama ilivyo katika kifungu cha 107(3)(c) cha sheria ya ndoa. Mpaka atakapofanya hivyo ndoa yao inabaki pale pale haiwezi kuvunjwa. C

Judgment was delivered by the learned Principal District Magistrate on 26/6/82 in the presence of the respondent but in the absence of the appellant.

As can be gleaned from the record of proceedings of the District Court, on 13/9/82 the respondent appeared before the learned Principal District Magistrate and made an D exparte application to redeem (kujikhului) herself by returning the dowry which the appellant had paid. The respondent is recorded to have stated before the learned Principal District Magistrate that she had looked for her husband, the appellant, but failed to trace him. The learned Principal District Magistrate then, with respect, E perfunctorily, ordered as follows:

Amri: Kwa kuwa jitihada za kumtafuta mumewe zimeshindikana na mke hana budi kuachwa kwa hali ya mambo yalivyo kufuatana na sheria za kiislamu. Mke ajigomboe kwa kulipa F khului inayolingana na mahari yaliyotolewa ambayo ni shs. 150/=. Fedha iwekwe amana mahakamani hadi mume atakapojitokeza.

Despite the allegation that the appellant was nowhere to be seen he came to know about G the order. He was dissatisfied and hence this present appeal to this Court.

In his reasons of appeal the appellant asserts that it is not true to say that he was nowhere to be seen and quotes that all process from the Court of first instance were being served on him without difficulty. The appellant complains that the learned Principal H District Magistrate erred on the issue of redemption (khului) and he further urges the Court to make an order against the respondent for restitution of conjugal rights.

This being a second appeal it can, therefore, only be entertained on a point or points of law. The learned Counsel for the respondent, Mr. Haule, argued that both Courts I below erred in failing to find that the

marriage between these parties had irreparably broken down because the appellant is a A poor man and, therefore, he cannot afford to support the respondent and further that there was evidence of abuses and insults uttered by the appellant which amounted to cruelty. All these are matters of fact for which, with the greatest respect to the respondent's advocate, this Court has no room for consideration at this time. B

On the other hand there are points of law involved in this appeal and these centre on the interpretation of section 107(3)(c) of the Law of Marriage Act, 1971, and on the issue of Redemption (Khului). It seems to me that the learned Principal District Magistrate C completely missed the import of s. 107(3)(c). One of the reasons why he did so is, I think because he read Paragraph (c) separately from the rest of sub-section (3). In fact sub-section (3)

of section 107 must be read together and not in parts in order to comprehend the same. To begin with section 107 of the Law of Marriage Act, 1971, deals with evidence that a marriage has broken down. Sub-section (3) reads: D

(3) Where it is proved to the satisfaction of the Court that -

(a) the parties were married in Islamic form; and

(b) A Board has certified that it has failed to reconcile the parties; and E

(c) subsequent to the granting by the Board of a certificate that it has failed to reconcile the parties, either of them has done any act or thing which would, but for the provisions of this Act, have dissolved the marriage in accordance with the Islamic law, the Court F shall make a finding that the marriage has irreparably broken down and proceed to grant a decree of divorce.

There are three conditions here all of which must be satisfied before sub-section three can be invoked or before it comes into play. G

Taking the present case as an example, it was established that the parties were married in Islamic form. This satisfies Paragraph (a). That is, however, not the end of the story. We move to the next stage and that is Paragraph (b). A Bakwata conciliatory Board did certify in this instance that it had failed to reconcile the parties. Mention should H perhaps be made that the certificate under reference here is the same as that mentioned in section 101 of the Marriage Act. Then, finally, comes the paragraph under querry, i.e. Paragraph (c). What it, i.e. Para (c), stipulates is that if,after the Board has already issued a certificate that it has failed to reconcile the parties, one of the parties - in this I instance, say, for example, the appellant - does an act or thing which under Islamic law is sufficient to

terminate the marriage - for example, he utters or issues a talaka or talaks sufficient to A dissolve the marriage under Islamic law - then the Court hearing the petition is enjoined to make a finding that the marriage has broken down irretrievably and to proceed to grant a decree of divorce. Evidence of performance of the offending act or thing must, invariably, be given at or during the hearing of the petition or putting it B broadly, before judgment and not thereafter. If 'Khului' is an act or thing capable, perse, of dissolving a marriage under Islamic law then, in this instance, the respondent should have done it at any time after the certification by the Board and before judgment. She did not do so. Instead she did it after judgment had already been delivered. C Assuming - which is the most I can do in this matter at the moment - that 'Khului' is one of the acts or things envisaged by Paragraph (c) then, for reasons already given, the one under querry is legally ineffectual, and I so hold.

I have already pointed out above that evidence of the act or thing mentioned in Para (c) must be adduced at the hearing of the petition. In this connection it is open to me to D hold, which I do, that the paragraph (quoted supra) in which the learned Principal District Magistrate advised the respondent to redeem herself under section 107(3)(c) is a serious misdirection in law. Suffice to say that the order of the Court below (dated 13/9/82) allowing the respondent to redeem herself is without any basis in law. The E same cannot be allowed to stand and it is hereby

quashed. The end result is that the appellant and the respondent are, in law, still husband and wife. The sh.150/= which were deposited per receipt No.548673 of 13/9/82 should now be refunded to the respondent. F

Para 4 of the appellant's reasons of appeal reads, and I quote:

4. Naiomba Mahakama Kuu itoe Amri ya Mwomba (Sic) rufaa (mke wangu) arudi nyumbani kwangu. G

Section 140 of the Law of Marriage Act, 1971, reads:

140. No proceeding may be brought to compel a wife to live with her husband or a husband with his wife... H

This should be sufficient to dispose of Para. 4 of the appellant's reasons of appeal. Much as this Court sympathises with him his plea on this point cannot be entertained as the same is contrary to dictates of the law. I

1985 TLR p223

All in all this appeal succeeds to the extent indicated. It also fails as indicated. I make A no order as to costs.

Order accordingly.

1985 TLR p223

B

[zRPz]RAMADHANI SALIM MTEI v REPUBLIC 1985 TLR 223 (HC)

Court High Court of Tanzania - Tanga

Judge Sisya J

January 23, 1984

CRIMINAL APPEAL 8 OF 1982 C

Flynote

Criminal Practice and Procedure - Sentencing - Arms and Ammunition - Suspension of a D licence to own a pistol - Duration of suspension order not specified - Arms and Ammunition Ordinance, Cap. 223, s.31(3).

Criminal Practice and Procedure - Sentencing - Natural justice - Forfeiture of pistol to the Government - Order of forfeiture made without hearing the appellant - Arms and E Ammunition Ordinance, Cap. 223, s.31(4).

-Headnote

The appellant was convicted on his own plea of guilty to a charge of failing to observe safe custody of his pistol, contrary to ss.29(1) and 31 of the Arms and Ammunition F Ordinance, Cap. 223. He was a businessmen based in Arusha and a holder of a pistol legally issued out to him. He had come to Tanga on business and secured a room at a guest house. Before retiring to bed, he requested the guest house care taker on duty to keep the pistol for him in safe custody; but he retained the magazine with eight rounds of G ammunition. The basis of the charge was that in the circumstances he ought to have deposited the pistol at the Police Station. He was

sentenced to pay a fine of Shs.500/=. The trial court also suspended his licence to hold a pistol indefinitely, and ordered forfeiture of the pistol itself, as well as its magazine and the eight rounds of ammunition. H He appealed against the order of forfeiture.

Held: (i) The law requires that when a court orders suspension of a licence or permit to hold a firearm under s. 31(3) of the Arms and Ammunition Ordinance, the period of suspension should be specified; consequently the trial magistrate's order was erroneous I for failing to specify the period of suspension;

SISYA J

(ii) the power to order forfeiture of arms under s.31(4) of the Arms and A Ammunition Ordinance is a discretionary power which must be exercised judicially, for failing to call upon the appellant to advance reasons why his pistol, magazine and rounds of ammunition should not be forfeited, the order of forfeiture was made in breach of natural justices;

(iii) in view of the appellant's clean record, the absence of mala fides in his act B of surrendering the pistol to the guest house care taker, and the reasons advanced in the appeal, the order of forfeiture does not remain with much merit;

Case Information

Appeal allowed. C

No cases referred to.

Judgment

Sisya, J.: This appellant was charged with and he was, on his own plea, convicted of the offence of failing to observe safe custody of arms and ammunition D contrary to sections 29(1) and 31 of the Arms and Ammunition Ordinance, Cap. 223, and he was sentenced by the learned Resident Magistrate, Tanga, to pay a fine of Shs.500/= or, in default of payment thereof, to go to jail for a period of one month. The learned Resident Magistrate also suspended his, i.e. appellant's, licence, indefinitely and E ordered forfeiture of his pistol, its magazine and eight round of ammunition which, incidentally, were the offending objects in the case.

The appellant paid the fine. This appeal is against the order of forfeiture only. F

The established facts of the case show that the appellant was, prior to his conviction in this matter, holder of a pistol (Exh. P1) which was legally issued out to him as per Exhibit P3. On 21/1/82 he came to Tanga from Arusha on business. He had his pistol with him and its magazine which carried eight rounds of ammunition. On his arrival in Tanga he G secured a room at Unguja Lodging. Later at about 9.00 p.m. before he retired to bed he requested the guest house's care taker then on duty, one Saidi Ali to keep the pistol for him in safe custody. The appellant, however, retained the magazine and the rounds of ammunition. The handing over was in writing but the relevant piece of paper was not, H as it ought to have been, tendered by the Public Prosecutor who prosecuted the case in the Court below. Thereafter Said Ali went and reported the matter to the Police. Eventually the appellant was arrested and subsequently brought to justice.

In making the orders against which the appellant is now appealing I

SISYA J

the learned Resident Magistrate observed that the appellant ought to have deposited the A pistol at the Police Station; that it becomes particularly dangerous when firearms fall into the hands of unauthorised persons; and that observance of regulations, safeguards against increasing armed robberies.

In his petition of appeal which is home made the appellant avers that the learned B Resident Magistrate erred in making the orders of suspension and forfeiture by not taking into account the following factors, that is to say, he was holding the pistol lawfully; that he has held the said pistol since 1974 without breaching any regulation; that as a businessman he needs the firearm for his own protection as well as for the protection of C "tourists" whom he deals with in the course of his business; that he put up at Unguja Lodging after failing to secure accommodation at any one of the big hotels in Tanga; that he was new in Tanga; that he felt insecure at the said Unguja Lodging, that the course of action which he pursued was the best that he could in the circumstances, and that the D offence which he committed was more technical then anything else.

The learned Resident Magistrate derived his powers of suspension from subsection (3) of section 31, Cap. 223, which lays down thus, and I quote: E

(3) Any person so convicted who holds a licence or permit under this Ordinance shall be further liable to forfeiture of his licence or permit or to suspension thereof for such period as the Court thinks fit. F

As can easily be observed this provision of the law is couched in mandatory language. The only option left upon to the Court is to either order forfeiture of a licence or permit, whichever may be the case, or to order suspension thereof. In the instant matter the learned Resident Magistrate opted, as he was perfectly entitled to do, to order G suspension of the appellant's licence.

The law, however, requires that the period of suspension be specified. The learned Resident Magistrate did not do so. By failing to specify the period of suspension the learned Resident Magistrate, therefore, erred. This error, however, is to my mind, H curable on appeal. It is my considered opinion that the period between the date of conviction and order, i.e. 28/1/82, to date is enough to meet the justice of the case.

I now move to the order of forfeiture of the firearms. The relevant provision of the law here is s.31 (4) Cap.223, as amended by Act No. 50 of 1964. It reads: I

(4) All arms or ammunition and any equipment or tool used in the manufacture and A assembling of such arms or ammunition, and any vessel, in respect of which an offence is committed, is liable to be forfeited to Government.

The power to order forfeiture under this provision of the law is discretionary. Needless B to say, such discretion must be exercised judicially.

As can be gleaned from the record of proceedings of the instant matter it becomes apparent that the appellant was not called upon to advance reasons why his pistol, magazine and round of

ammunition should not be forfeited to the Government. Such a C move is very important because failing which may be tantamount to denying the appellant his right of being heard on this particular point and consequently resulting in the breach of natural justice. Had the learned Resident Magistrate called upon the appellant to address him on the question of forfeiture I am minded to believe that the latter would D have advanced the reasons which he has now done in his petition of appeal. And had the learned Resident Magistrate heard and considered these reasons it is doubtful if he still would have made the order of forfeiture. This doubt, as the law requires, must be resolved in favour of the appellant. E

I have myself considered the reasons advanced by the appellant as conscientiously as I could and, in all the circumstances of the case, I find them plausible. The appellant has a clean record and he, readily, pleaded guilty when the charge was read out to him. I take this as a sign of contrition. I see no sign of mala fides in his act of surrendering his pistol to the guest house attendant for safe custody, the inherent dangers that exist in such a F move notwithstanding. To my mind it was more of a tactical error than anything else.

All in all, for the reasons given I am satisfied that this appeal has merit and it is hereby allowed. The order of forfeiture is quashed and set aside. It is further directed that subject to licensing regulations the pistol (Exh. P.1), the magazine and eight bullets G (Exh.P3) shall now be restored back to the appellant.

Appeal Allowed

1985 TLR p227

A

[zRPz]REPUBLIC v JOSEPH MATEO 1985 TLR 227 (HC)

Court High Court of Tanzania - Tanga

Judge Sisya J

March 7, 1983

CRIMINAL REVISION 15 OF 1982

Flynote

Criminal Practice and Procedure - Assault causing grievous harm - Three complainants B injured in the same assault - Whether constituting one or three separate offences.

-Headnote

The accused was charged with assault causing grievous harm contrary to s. 225 of the C Penal Code but the facts showed only the offence of unlawful wounding and the trial court convicted him accordingly. But, although three people were injured in the same assault, the accused was charged with and convicted of only one count. On revision by the High Court.

Held: Even though there may have been only one assault, the fact that three different D complainants were injured thereby constitutes three separate and distinct offences which ought to have been charged in three separate counts and a separate conviction entered for each count.

Case Information

Order accordingly. E
No cases referred to.
Judgment
Sisya, J.: The accused appeared before the learned Principal District F Magistrate, Pangani, and pleaded not guilty to three counts of doing grievous harm contrary to section 225 of the Penal Code. After a full trial the learned Principal District Magistrate held that since the three complainants in each count were injured in the same assault the accused ought to have been charged with a single count and not three. He therefore, entered a verdict on only one count. G With respect, this was wrong. Although, indeed, the evidence shows that the injuries were inflicted by the accused on the complainants in the same assault each impact on every one of the complainants was, however, in law, a separate and distinct assault or offence. The same could not, therefore, properly be charged in a single count. H
In this judgment the learned Principal District Magistrate found that the established facts proved the offence of unlawful wounding and not grievous harm. This, I hold, is correct in respect of all the three complainants. The nature of injuries sustained by the I complainants did not amount to grievous harm as defined by the law. As aforesaid the learned Principal District Magistrate then entered a single conviction under
1985 TLR p228
section 228 of the Penal Code in count one and proceeded to pass a single sentence A thereon. This was wrong. In exercise of my powers in revision and, on my evaluation of the evidence, I find the accused guilty not as charged but guilty of unlawful wounding contrary to section 228 of the Penal Code in counts two and three and I convict him accordingly.
Regarding sentence, the accused was sentenced to three months imprisonment in count B 1. I also sentence him to three months imprisonment in Counts two and three. Sentences on count 1, 2 and 3 to ran concurrently.
C Order accordingly
1985 TLR p228
D
[zRPz]JEREMIAH SHEMWETA v REPUBLIC 1985 TLR 228 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

September 23, 1983
CRIMINAL APPEAL 24 OF 1981
Flynote
Criminal Practice and Procedure - Judgment - Content of judgment - Judgment making E reference to mere existence of evidence without analysing its weight in reaching at the decision - Criminal Procedure Code, s. 171(1) [now s. 312(1) of the Criminal Procedure Act, 1985].

Criminal Law - Theft - Doctrine of recent possession - Appellant found in possession of a F stolen motor concealed in a bag left by a friend - No evidence of knowledge of what the bag contained - Whether guilty of theft.
Evidence - Credibility - Prosecution witnesses giving inconsistent accounts - Doubts created to be resolved for the appellant's benefit G
-Headnote
The appellant and another, who was second accused in the trial court and did not appeal, were jointly charged with and convicted of stealing by servant contrary by to ss. 265 and 270 of the Penal Code. The charge was founded upon the doctrine of recent possession in that the appellant was found in possession of a stolen electric motor, H concealed in a large bag. The appellant's story was that the bag was left at his house by a friend, the second accused, the day before and he did not know what the bag contained until immediately after arrest. The Police found him and the second accused fled upon seeing the Police. The three Police officers who effected the arrest gave rather I conflicting accounts of the

story, some confirming and others controverting the appellant's version. In his judgment A the trial court magistrate merely made reference to the existence of some evidence in support of conviction without singling out any pieces of evidence and evaluating them to show how such evidence supports the decision he reached. On appeal: B
Held: (i) By merely making plain references to the evidence adduced without even showing how the said evidence is acceptable as true or correct, the trial court magistrate failed to comply with the requirements of s. 171(1) of the Criminal Procedure Code C [s.312(1) of the Criminal Procedure Act, 1985] which requires a trial court to single out in the judgment the points for determination, evaluate the evidence and make findings of fact thereon;

(ii) there was no evidence of fraudulent intent or any falsity in the appellant's claim that he did not know what the bag contained, while there is uncontroverted D evidence to show that the appellant knew the second accused as a fellow employee and had no reason to be nosey with the latter's bag;

(iii) the discrepancies in the various accounts of the story by the prosecution witnesses give rise to some reasonable doubts about the guilt of the appellant; E
Case Information
Appeal allowed.
Cases referred to:

1. Kagaye Bundala v R. [1959] E.A. 900 F
2. Willy John v R. [1956] 23 E.A.C.A. 509
3. Desiderio Kawunya v R. [1953] 20 E.A.C.A. 281
4. Dnikerai Hamkrishan Pandya v R. [1957] E.A. 336

W.R. Mramba, for the appellant G
Judgment

Sisya, J.: This appellant, Jeremiah s/o Shemweta, and another, who has not appealed, were, jointly, charged with and convicted of the offence of stealing by servant contrary to section 265 and 270 of the Penal Code and they were H each sentenced by the learned Senior Resident Magistrate, Tanga, to five years imprisonment under the Minimum Sentences Act, 1972. Dissatisfied the appellant is now appealing to this Court.

The first ground of appeal in his petition of appeal drawn on his behalf by learned I Counsel, Mr. Mramba, is that the learned Senior Magistrate failed to deliver judgment according to the provisions of section 171(1)

of the Criminal Procedure Code. A

The said section 171(1) of the Criminal Procedure Code reads:

171-(1) Every judgment under the provisions of section 170 shall, except as otherwise expressly provided by this Code, be written by, or reduced to writing under the personal B direction and superintendence of, the presiding judge or magistrate in the language of the Court, and shall contain the points for determination, the decision thereon and the reasons for the decision, and shall be dated and signed by such presiding officer as of the date of which it is pronounced in Open Court. C

After giving a synopsis of the evidence adduced by both sides of the case, that is, the prosecution and the defence, the learned Senior Resident Magistrate then went on to direct himself in the following terms and I quote: D

From the foregoing evidence it is far from being in dispute that the first accused (N.B. Now the appellant) was arrested on the material date with the motor in question at his house. There is evidence showing that the first accused was arrested while trying to load the same onto a E wheelbarrow. There is also evidence showing that as the first accused was being arrested another person ran away from the Scene, the said person was seen by two of the three prosecution witnesses-Police Officers who went to the Scene the said person was said to be the second accused. There is evidence showing a motor had been stolen from the Kiwanda F cha Walemavu in Tanga a place where the second accused was working. After going through all the relevant evidence on record, (I) find that the evidence relied upon by the prosecution has proven its case against both accused person(s) and each is found guilty and convicted as charged. G

With great respect to the learned Senior Resident Magistrate the judgment did not, indeed, comply with the requirement of section 171(1) of the Criminal Procedure Code. H It is not sufficient under the said section merely to make plain reference to the evidence adduced, for example, by merely saying that there is evidence showing this and there is evidence showing that, without even stating whether or not the said evidence is acceptable and/or accepted as true and/or correct. I

It may be argued that from his final decision in the case one may reasonably presume A that the learned Senior Resident Magistrate considered all the evidence before him and he, eventually, accepted the prosecution evidence in preference to the defence story. This argument may be viable only as far as the factual aspect of this matter is concerned. B It cannot be stretched beyond that because under the law it was incumbent upon the learned Senior Resident Magistrate, explicitly, to single out in the judgment the point or points for determination, evaluate the evidence and make findings of fact thereon and, applying the law, come to a decision in the matter. This the learned Senior Resident Magistrate failed and/or neglected to do. C

The question that now naturally, arises is, what effect does noncompliance with section 171(1) have on this instant matter. Fortunately, this type of situation is by no means new and the position was authoritatively made clear in the fifties by the precursor of the Court D of Appeal whose decisions are binding on this Court. The relevant authority was, with gratitude, quoted to me by Mr. Mramba, learned Counsel for the appellant. It is the case of Kagoye s/o Bundala v.R. [1959] E.A. 900. on appeal from the decision of the forerunner of this Court, i.e. H.M. Court of Tanganyika. In it the Court of Appeal had this to say at page 901: E

> Clearly the judgment did not comply with the requirements of section 171(1) of the Code ..... A noncompliance with section 171(1) does not, however, necessarily invalidate a conviction, and F this Court, therefore, had to decide whether the conviction was invalidated or whether it could hear and determine the appeal on its merits
>
> A similar question has come before this Court on a number of occasions, but we think that it G will be sufficient if we refer to the most recent reported decision, Willy John v R (1956) 23 E.A.C.A. 509, in which the principle to be applied is clearly stated. That was an appeal from the Supreme Court of Seychelles, and in its judgment the Court said at P.510: H
>
> There is no doubt that the judgment does not comply with the requirements of section 149(1) of the Criminal Procedure Code, namely - 'Every such judgment shall, except as other-wise expressly 'provided by this Code, be written "by the presiding Officer of the I Court in the language of the Court, and shall contain the point or points for determination, the decision thereon and

> the reasons for the decision, and shall be dated and signed by the presiding officer in A open Court and at the time of pronouncing it".
>
> The failure to date and sign the judgment is a mere irregularity which can be cured by the application of section 304 of the Criminal Procedure Code since the whole of the record of the B proceedings is in the hand of the trial judge and there was no prejudice to the appellant. But the failure to comply with the other requirements of the section is fatal to the conviction. In Desiderio Kawunya v Regina, (1953) 20 E.A.C.A. 281, this Court held that failure to comply C with the provisions of section 169(1) of the Uganda Criminal Procedure Code which is in similar terms to section 149(1) of the Seychelles Criminal Procedure Code will not necessarily invalidate a conviction if there is sufficient material on the record to enable the Appeal Court to

consider the appeal on the merits. In this case there is clearly insufficient D material on the record to enable us to consider the appeal on the merits.

We have therefore to decide whether in the instant appeal there was or was not sufficient E material on the record to enable us to determine the appeal on its merits.

The ratio decidendi of the Bundala case is, therefore, to the effect that non-compliance with section 171(1) of the Criminal Procedure Code notwithstanding the appeal Court still has to decide whether the record of proceedings contains sufficient material for the F determination of the appeal on its merits. It is towards this goal that I now direct my mind. In doing so I am guided by the principle of law that sitting as the first appellate Court in this matter it is incumbent on me to treat the evidence adduced in the case as a whole to that fresh and exhaustive scrutiny which the appellant is entitled to expect in G order to ascertain if the conviction is justified and supported by the evidence, see Dnikerei Hamkrishan Pandya v R. [1957] E.A. 336. The case for the prosecution rested mainly upon the evidence of three witnesses, all Police Officers: These were Detective Sergeant Major Saidi Abadalla (PW1), Sergeant Major Hassan (PW2) and H one Amani Hassani (PW4) who simply described himself as a Police Officer without disclosing his rank, that is to say, if he has any. All these three witnesses for the Prosecution i.e. PW1, PW2 and PW4 are agreed that on the material day acting upon information received they proceeded to the house of this appellant whom they arrested as he I

prepared to load the offending object in the case, to wit an electric motor, on to a A wheelbarrow.

The appellant in his defence did not dispute this. In fact he conceded the same although according to him the said motor had already been loaded in the wheelbarrow when the Police pounced on him and the motor. He, i.e. the appellant, however, gave an B explanation as to how the said electric motor which, incidentally, was tendered and admitted as real evidence at the trial and marked Exh "A" came to be in his house.

In his sworn statement in his own defence the appellant stated that on Good Friday in 1981, which was also the day on which he was arrested in connection with this matter, C he was visited by several persons at his house. One of the said visitors was the man with whom he appeared jointly in the Court below. The said person appeared as second accused and I will, throughout hereafter, continue to call him so, i.e. second accused.

The second accused arrived on a bicycle on which he had also carried a bag. The two D of them knew each other before; both of them being subordinate or junior employees in the Ministry of Labour and Social Welfare Stationed here at Tanga. He, i.e. the appellant, was office attendant at the office of the Regional Welfare Officer - at the material time this was one Earnest Mtela (PW3) - whereas the second accused was E night guard at the Kiwanda cha Walemavu. As it was still during the morning hours they, i.e. the appellant and second accused, and another visitor, one Mussa Iddi Bakari (DW1) drank tea together. Later, as if to crown all, they all went out to imbibe some liquor. They went on foot, the second accused having left his

bicycle at the appellant's F house. They drank liquor until 2.00 p.m. when they returned to the appellant's house. On their arrival the second accused pleaded that he was too drunk to ride his bicycle with the handbag and its contents on the carrier. He, therefore, asked and was permitted to leave the said handbag and its contents behind and collect them on the morrow. Unsuspecting and without any knowledge as to what the bag contained the appellant agreed. G
The appellant stated in his defence that on the following morning the second accused followed him at his place of work and demanded his luggage. Two of them then proceeded to the appellant's house. On the way the second accused hired a wheelbarrow which was being pushed by two boys. At his house the appellant opened H the door and handed over the bag to the second accused. The latter put it in the wheelbarrow. At the same time the Policemen came whereupon the second accused took to his heels and fled. The Policemen then opened up the bag which, incidentally, is actually a big handbag and in it was found an electric motor, Exh. A. I
1985 TLR p234
SISYA J
The appellant's story that there was a wheelbarrow which was under the management of A two persons was confirmed by the three Police Officers who went and arrested the appellant, i.e. PW1, PW2, and PW4. According to PW1 the second accused was not present when the appellant and the two wheelbarrow managers were walking towards the appellants house, where Exh.P."A" was admittedly kept. The impression that one B may derive from this piece of evidence is that the appellant must be the person who hired the wheelbarrow. This was denied by the appellant who, as aforesaid, stated that it was actually the second accused who hired it.
Although it is in evidence on the prosecution own side that it was the same wheelbarrow C and its two managers who were hired to take the motor, Exh.A, to the Police Station and that they did do so, the names of the two persons who pushed the wheelbarrow were not disclosed nor were they, or either of them, called as witnesses in the case. The end result is that the only evidence available on as to who hired the wheelbarrow is that D of the appellant who, again, as aforesaid, stated that it was the second accused. There is absolutely no reason why this piece of evidence should not be believed. I accordingly accept it as true.
The issue of the second accused's flight at the sight of the Policemen was variously described by PW1, PW2 and PW4. According to PW1 he saw the second accused E come out of the house of the appellant while, together with the latter, carrying Exh."A". He, i.e. Second accused, however fled and escaped when the two of them were challenged by the Police. PW2 recalled that the appellant was 'with another person who escaped'. According to his evidence it seems he failed to identify the said escapee. F
This witness, PW2, added that he was the one who, however, later, led by the appellant, went to the house of second accused and arrested him in connection with this same matter. PW4, on the other hand, made absolutely no mention whatsoever of the second G accused, or any other person who allegedly escaped, in his evidence in chief. He went even further in his cross-examination by Mr. Mramba who appeared for the appellant and said: 'I did not see the second accused. I did not see the second accused run away.

I find these discrepancies in the evidence of PW1, PW2 and PW4 almost inexplicable. H These Police men had set out to do the same piece of work and they were all the time together, acting in concert. How then it may be asked, could anyone of them possibly fail to see a person escape, particularly so when, on the other hand it behoves me to believe that not all the three Police men, i.e. PW1, PW2 and PW4, were acting with the I same alertness as would be expected of a police officer duly

detailed to pursue a particular assignment. A

Be it as may, the discrepancies under querry on the prosecution own side raise some reasonable doubt as to whether or not the second accused did, indeed, escape on the arrival of PW1, PW2 and PW4. I resolve this doubt for the benefit of the appellant as required by law and consequently I am satisfied, and I so find, that the second accused B took to his heels and fled when he and the appellant were challenged by the Police.

Although the learned Senior Resident Magistrate did not specifically say so in his judgment it sounds clear that he invoked the doctrine of recent possession in arriving at the conclusion which he did in the case. I am strengthened in this because no direct C evidence of theft was adduced in the case.

The appellant gave an explanation as to how Exh. A came to be in his house and/or possession. His version of the story, as summarised here in above, was supported in material particular by Musa Iddi Bakari (DW1).

The defence story on this aspect of the case is in direct conflict with the testimonies of D PW1 and PW4 on the same point. PW1 stated in his evidence that when challenged the appellant said that Exh. A was his own property. PW4 too gave evidence to the same effect on this point. PW2, on the other hand, swore that the appellant "stated that he was given the motor by the second accused who was a fellow employee for safe E keeping." Again, the Police men have contradicted each other on a material point. This raises a reasonable doubt the benefit of which, as usual and according to law, goes to the appellant. I am satisfied, therefore, and I so find that the appellant did point out to the Police Officers, PW1, PW2 and PW4 that Exh. A belonged to the second accused F and that it was temporarily kept in his house for safe custody.

The question arises as to whether the appellant could have failed to querry his fellow employee's ability to own an electric motor. The appellant's reply to this was that till the G time of interception by the Police he did not know what the handbag contained.

As aforementioned the electric motor was tendered as real evidence. I have looked at it in the handbag. When the bag is closed the motor is completely concealed. The appellant's explanation that he did not know what the handbag contained could therefore, jolly well be true. The fact that the appellant was not, so to speak, nosy H cannot be taken to detract adversely from his credit. The material point to note is that there is uncontroverted evidence to show that the appellant knew that second accused before and, further, that there is no conclusive evidence to show that whatever he did, he did the same with the necessary animus furandi.

Had the learned Senior Resident Magistrate evaluated the evidence before him with I judicial objectivity I entertain grave doubts as to whether
1985 TLR p236
or not he would still have come to the same conclusion at which he arrived in this case. A On my evaluation of the evidence and in all the circumstances of the case I find that the explanation given by the appellant in his defence is reasonable. This is enough to dispose of this appeal which is hereby allowed. The conviction is quashed and the sentence passed thereon is set side. It is further directed that unless he is being held for B some other lawful purposes the appellant should be released from prison forthwith.
Appeal Allowed
1985 TLR p236
C
[zRPz]SAIDI KIKA v REPUBLIC 1985 TLR 236 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

September 23, 1983
CRIMINAL APPEAL 28 OF 1982 D
Flynote
Criminal Practice and Procedure - Charges - Charge and statement of facts not disclosing any offence - Whether conviction proper. E
Criminal Practice and Procedure - Appeal - Trial court errors not raised by appellant due to ignorance - Power of appellate court.
-Headnote
The appellant was convicted, on his own plea, of transporting agricultural products without a valid permit contrary to ss.3 and 7 of the National Milling Corporation F (Specified Agricultural Products) (Control of Transport) Order 1976, GN80 of 1986. The order prescribes a maximum limit of 30 kgs of paddy and/or rice, which may be transported without a permit. But while alleging in its particulars that the appellant transported three bags of paddy and three bags of rice, the charge did not show the G weight of the products, and the facts as given by the prosecution showed that he was found with three sacks of rice only. The appellant was sentenced to pay a fine of Shs.800/= and the rice was ordered to be forfeited. He appealed against sentence and forfeiture. H
Held: (i) While the charge and the statement of facts are inconsistent in their description of the nature of the offending object, none of them specify its weight, which is essential ingredient of the offence charged;
(ii) by failing to specify the weight of the offending objects, neither the charge nor the statement of facts disclosed any offence; the plea of guilty was therefore I equivocal and not capable of supporting a conviction;

1985 TLR p237
SISYA J
Case Information
Appeal allowed. A
No cases referred to.
Judgment
Sisya, J.: This appellant was convicted, on his own plea, of the B offence of transporting agricultural products without a valid permit contrary to sections 3 and 7 of the National Milling Corporation (Specified Agricultural Products) (Control of Transport) Order, 1976. He was sentenced to pay a fine of shs. 800/=, or in default of payment of the fine, to go to jail for four months. He paid the fine. The offending C objects, i.e. paddy and rice, were ordered forfeited to the government. This appeal is against sentence and the order of forfeiture only.
Upon going through the record of proceedings it was observed that there were some other unsatisfactory aspects of the case which were not raised by the appellant in his D petition of appeal. I, nevertheless, propose to deal with these all the same. This is so because the appellant was not represented by learned counsel at the hearing of the case in the Court below. Had he availed himself of such services then, perhaps, the position would have been different from what it now is. Further, it is because the appellant is a E raw citizen - at least that is the impression I got when I saw him at the hearing of this appeal. The said features under querry stem from the charge it speaks and I quote:

Offence Section and law:

Transporting Agricultural products without a valid permit c/s 3 and 7 of the National F Milling Control of Transport Order (sic) GN 80/176 made under Section 12 and 17 of NMC Act. No. 11/1975.

Particulars of Offence: G

Saidi Kika charged on or about the 26th day of June, 1982 at about 11.30 hours at Makorora within the District and Region of Tanga being not holder of valid permit or authorised person or agent of National Milling Corporation did transport 3 bags of paddy and 3 bags of rice from Kitivo Lushoto District to Tanga without permit from H N.M.C.

The proper citation of the order quoted in the statement of offence is as cited in the opening paragraph of this judgment. According to an endorsement on the relevant I charge sheet it becomes crystal clear that the same passed through the hands of the learned trial Magistrate, at
1985 TLR p238
SISYA J
least, before it was "read over and explained" to the appellant. This exercise, that is of A Magistrates going through charge sheets before the same are "admitted" and/or read over to accused persons is commendable and desirable and this Court will be all out in support of it. The said exercise will, however, have no meaning at all if it is done perfunctorily. In this connection Magistrates are, once again, called upon to be B meticulous in whatever exercise they engage themselves in whilst in office. The Magistrate here did not bother about the error in the statement of offence. So much for that.

Section 3 of G.N. 80 of 1976 under which the appellant was charged and convicted and the schedule thereto impose an absolute restriction on the transportation of paddy and/or C rice 'exceeding thirty kilograms at any one time' without a permit issued by the National Milling Corporation. It is manifest, upon reading the provision of the law in point, that the weight of the agricultural product involved is an essential ingredient of the offence. Upon a proper interpretation and construction of s.3 of G.N.80 of 1976 and D by necessary implication the transportation of rice and/or paddy, or any of the other products specified in the schedule for that matter, of or below the weight of thirty kilograms is not an offence at all under that piece of legislation.

In short, by failing to show the weight of the 'three bags of paddy and three bags of rice,' E a material factor and/or essential element, the charge, simply, did not disclose any offence.

Not only that. The statement of the facts of the case as presented by the learned Public Prosecutor which is remarkable for its brevity may, conveniently, be quoted in full. It reads: F

P.1

Facts are that on 26/6/82 at about 11.30 a.m. at Makorora No. 5428 P.C. Hamidu of Police, Tanga, was on duty. He came across accused carrying three sacks of rice. Accused said he G had brought then from Kitivo, Lushoto, without a permit from N.M.C. Accused said he brought the rice for his children in town."

The weight of the offending object was, again not given in the statement of facts. As a matter of fact even the said offending object had been 'reduced' 'from three bags of H paddy and three bags of rice' to three bags of rice only. As the position stands it is not clear whether the appellant had, in all six bags; three of paddy and another three containing rice as alleged in the charge or if he had only three bags of rice as stated by the learned Public Prosecutor to the learned trial Magistrate. Be it as I

it may, the fact of the matter is that even the statement of facts discloses no offence A under s.3 of G.N. 80 of 1976.

In view of the aforegoing one wonders to what offence the appellant pleaded when he is recorded to have said, "It is true", and a plea of guilty entered. On my part in so far as both the charge as laid and the statement of facts of the case as presented disclose no B offence the appellant's plaint cannot be said to be unequivocal. The proceeding was thus, a nullity ab initio and it is so declared.

In the final result the conviction, sentence and order of forfeiture cannot be allowed to stand and the same are, consequently, avoided. It is further ordered that the fine which C the appellant paid should now be refunded to him and the rice, Exh. P.1, restored to him. In the likely event of the rice having been disposed of then the appellant should be paid its equivalent monetary value. In other words this appeal is allowed.

D Appeal allowed.

E

Court High Court of Tanzania - Tanga
Judge Kapoor Ag J

April 10, 1984
(PC) CIVIL APPEAL 29 OF 1982
Flynote
Family Law - Marriage - Presumption of marriage - Parties living together for five years - F Whether a lawful marriage is thereby established - Law of Marriage Act, 1971, s 160(1).
Family Law - Custody of children - Right of custody of a child born out of cohabitation without marriage - Law of Persons, GN 279 of 1963. G
-Headnote
The parties never contracted a marriage but they lived together in cohabitation for five years, out of which a child was born. The respondent claimed custody of the child. He lost in the Primary Court but won when he appealed to the District Court, on the basis H that the parties had lived together for five years and therefore, the court held, they were to be treated as duly married. The appellant appealed to the High Court.
Held: (i) Under s. 160 of the Law of Marriage Act, 1971, parties can raise a presumption of marriage if they have stayed together for a period of over two years; but I the presumption is rebuttable and the intention of
1985 TLR p240
s. 160(1) is not to create an alternative procedure of contracting a valid marriage; A

(ii) because the parties were never married, the child born to the appellant is an illegitimate child and the respondent cannot claim it now as he never legitimized it in time by application through the Law of Persons, G.N. 279 of 1963; B
Case Information
Appeal allowed.
Case referred to:

1. Francis Leo v Paschal Simon Maganga [1978] L.R.T. 22 C

Judgment
Kapoor Ag. J.: Appellant was sued by the respondent who claimed custody of his child born to the appellant on 25/2/1982.
The parties had lived together for nearly 5 years - but they were not lawfully married. D The District Magistrate, in a very well written judgment gave custody of the child to the respondent. His reasons for reversing the judgment of the Primary Court were that anyone who sires a child adulterously cannot be held to claim the child.
The District Magistrate reasoned that since the parties had lived together for nearly 5 E years, as husband and wife, they were to be treated as duly married. The authorities that he cited, were relevant to those parties who were lawfully married. With respect to the District Magistrate, I cannot agree with his reasoning, which made him to consider that the respondent

and appellant were lawfully married. Under the Law of Marriage Act, F parties can raise a rebuttable presumption of marriage if they were staying together - for a period of over 2 years, in such circumstances as to have acquired the reputation of being husband and wife.
This presumption may be rebutted if it can be proved that the parties had never gone G through a ceremony of marriage recognised under the Act: Francis s/o Leo v Paschal Simon Maganga [1978] LRT n.22.
The intention of the legislature under section 160(1) of the Law of Marriage Act is not to give a general licence of Legal Marriage Status to parties who live together for two years H and above in such circumstances. The Law of Marriage Act lays down strict procedure through which a man and woman capable of contracting a marriage can contract a valid marriage. Section 160(1) of the Law of Marriage Act only creates a rebuttable presumption of Marriage. It does not create another method of contracting a I Lawful Marriage under the Act.
1985 TLR p241
Hence it can be clearly stated that the only method of contracting Lawful Marriage in A Tanzania is by following the laid-down provisions under Part II of the Law of Marriage Act. In this case the parties themselves agree that they have not been lawfully married. They just lived together. The rebuttable presumption is adequately rebutted by the parties themselves. The Primary Court Magistrate had framed this question as an issue B No. 4 and reached the conclusion that the parties were not lawfully married; they were just living together.
Accordingly, the cases cited by the District Magistrate are not relevant to the circumstances of this case. The respondent was not lawfully married to the appellant; C hence the appellant's child born to the appellant on 25/2/82 is an illegitimate child. The respondent could have legitimated this child before it weaned under Rule 181 of G.N. no. 279 of 1963. This the respondent has not done and it is too late in the day now for him to claim this child from the appellant.
I therefore, allow this appeal and grant custody of the child to the appellant. Respondent D to pay appellant's costs of this Court and courts below.
Costs of this appeal are fixed at Shs. 268/= inclusive of court fees paid. E
Appeal allowed
1985 TLR p241
F
[zRPz]REPUBLIC v NJAMA ZUBERI 1985 TLR 241 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

March 9, 1983
MISCELLANEOUS CRIMINAL CAUSE NO.1 OF 1982 G
Flynote

Criminal Practice and Procedure - Bail - Bail pending trial for murder where the accused is a child of tender years - Powers of the court - Criminal Procedure Code, s.123 (3). H

-Headnote

This was an application for bail pending trial for murder. The applicant/accused, a child of tender years was held in custody at Handeni, where there were no facilities for keeping juvenile offenders. The boy's parents were able and willing to look after him and to produce him in court as and whenever directed and the charge was likely to be I reduced to manslaughter.

1985 TLR p244

Held: (i) In the interests of the juvenile accused, it is necessary to remove him from A custody where he is likely to associate with adult offenders and other undesirable influence.

Case Information

Order accordingly B

No cases referred to.

Editorial Note: The Criminal Procedure Act, No. 1 of 1985 has no provision equivalent to section 123(3) of the Criminal Procedure Code cited above. The Criminal Procedure Act has completely removed the discretion of granting bail by the High Court in murder C cases.

Judgment

Sisya, J. : This matter has arisen out of my safari to Handeni. The accused, Njama s/o Zuberi a boy of tender years, aged about ten years, stands charged with the capital offence of murder contrary to section 196 of the Penal Code. He is D being held in custody since November, 1982, pending the holding of a preliminary inquiry and the subsequent trial before this Court. It was impressed upon me by the learned District Magistrate, Handeni, that there are no proper facilities for holding juvenile offenders at Handeni Prison. The accused was, at the time of incident, living E with his parents who are able, willing and prepared to look after the accused and produce him before the Court as and whenever directed.

From the depositions so far already in the hands of the Police it sounds very likely that the capital charge will be reduced to one of manslaughter, at the most: The accused is F alleged to have struck the deceased, another infant, with a stone while they were at play.

In all the circumstances of this case I am of the considered view that it is necessary, in the interests of this accused, to remove him from custody where he is likely to associate with adult offenders and/or any other undesirable person. In the final result, in terms of G powers conferred upon me by section 123(3) of the Criminal Procedure Code, I exercise my direction in favour of this accused and hereby direct that from now onwards the accused be released on a recognizance being entered into by his father with H two reliable sureties, each in the sum of Shs.10,000/= It is ordered accordingly.

For the avoidance of any doubt it is hereby stated that this order shall remain in force until such time when further, or any other, orders are made by a Court of competent jurisdiction.

I Application for bail allowed.

A

[zRPz]MWANANCHI ENGINEERING & CONSTRUCTION CO. LTD v REPUBLIC 1985 TLR 243 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

June 22, 1984
CRIMINAL APPEAL NO 2 OF 1983 B
Flynote
Criminal Practice and Procedure - Charges - Charge containing something not known to anyone - Whether proper.
Criminal Practice and Procedure - Charges - Defective charges - Charge alleging that "bog stearing" was out of order - Both parties understanding "bog stearing" to mean "stearing C system" - Whether the defect in the charge is fatal.
Evidence - Admissibility - Admissibility of Reports - Vehicles Inspection Report admitted under s. 34B(2) of the Evidence Act, 1967 - Whether proper.
Road Traffic - Vehicle inspectors - Appointment of vehicle inspectors - Road Traffic Act, D 1973, s.4(a).
Road Traffic - Vehicle inspection - Vehicles inspected by a person not duly appointed a vehicle inspector - Whether inspection report may be accepted.
Road Traffic - Defective vehicle - Steering mechanism locked due to driver's carelessness E - Whether it amounts to having a defective steering system.
Road Traffic - Defective vehicle - Broken windscreen - Three layer windscreen cracked on one side - Whether the crack amounts to broken windscreen. F
Criminal Practice and Procedure - Compensation - Jurisdiction to order compensation in a criminal trial - Order of compensation for vehicle damaged in an accident - Whether criminal court has jurisdiction. G
-Headnote
The appellant company was charged with and convicted of permitting a defective motor vehicle to be driven on the public road contrary to the Road Traffic Act, 1973. It was sentenced to a fine and ordered to pay Shs.8,000/= as compensation to the owner of H another vehicle damaged as a result of the offending act. The defects, as alleged in the charge, were a broken windscreen and a "bog stearing" being out of order. Nobody, not even the trial court magistrate, was able to tell what "bog stearing" meant. The evidence showed that the windscreen was only cracked on one side and the vehicle was I fitted with a security lock in its steering mechanism as a precaution against theft of the vehicle. The locking system and the ignition system were designed to be controlled centrally
1985 TLR p244
and simultaneously such that the lock would open immediately upon igniting the engine A and it would lock upon removing the ignition key. But on the material day the central and

simultaneous control had developed some faults: the ignition key continued to control and operate the locking system without igniting the engine and the vehicle had to be started by connecting certain wires. Apparently, after starting the engine, the driver B was careless and did not turn the key fully to undo the steering lock. On appeal it was argued, inter alia, that the trial court magistrate should not have relied, as he did, on a motor vehicle inspection report by a person not duly appointed under the Road Traffic Act, 1973. C

Held: (i) "Bog stearing" which was referred to as being defective in the charge is something not known to exist in the present motoring world and by containing something which is not known, the charge was defective;

(ii) as both the prosecution and the defence proceeded on the understanding that "bog stearing" actually meant the steering system, the defect in the charge did not D embarrass the appellant and it did not occasion a miscarriage of justice;

(iii) the Motor Vehicles Inspection Report was improperly admitted in this case because the application of s. 34B(2) of the Evidence Act, 1967 under which it was purportedly admitted is in respect of the admission of written statements and not reports E like this one;

(iv) the admission of the Motor Vehicles Inspection Report was also improper in that the purported report was made by a person who was not a motor vehicles inspector duly appointed by the Minister in accordance with the Road Traffic Act, 1973 F and moreover he did not appear to testify in court and his expertise and experience was dubious;

(v) in view of the evidence showing that the steering system was merely locked due to the carelessness of the driver, a charge alleging defects in the steering system has not been established;

(vi) the evidence shows that the windscreen was only cracked on one side and G it was not letting in water or air; it was not broken as the charge alleged;

(vii) the order for compensation had no basis in this case and in making it the trial court magistrate acted in excess of jurisdiction; H

Case Information

Appeal allowed.

No cases referred to.

Mwakajinga, for the appellant I

A.T. Akaro, for the Republic

1985 TLR p245

SISYA J

Judgment

Sisya, J: The appellant company was charged with and convicted of A permitting motor vehicle to be driven on the road while its condition is defective. This is an offence under the Road Traffic Act, 1973. The company was sentenced by the learned District Magistrate, Korogwe, to pay a fine of Shs.750/= or distress in default. The fine was paid. The company was also ordered to pay Shs.8,000/= as B compensation "to the owner of the motor vehicle registration no. TAJ 33". Dissatisfied the appellant company is now appealing.

The particulars of offence in the charge as laid reads:

C The person charged (on 19th day of December, 1980 at about 12.00 hrs at Manundu along Korogwe/Tanga road within the District of Korogwe Tanga Region) being the owner of a m/v Reg. No. SU 1784, L/Rover did permit the said m/v to be driven on the public road while its general mechanical condition was not in good order in that bog stearing (sic) was out of order D and windscreen was broken.

In the third ground of appeal the appellant company avers that the learned trial Magistrate erred in law by convicting it on a charge which was not understood even by E the learned Magistrate himself. At the hearing of this appeal before me it became abundantly clear that the argument here centred on the term "bog stearing". It was submitted by the learned counsel for the appellant, Mr. Mwakajinga, that no such a thing known as "bog stearing" (or is it "bog steering) is known in the whole framework of a F motor vehicle. The learned State Attorney, Mr. Akaro, on the other hand, submitted that "bog steering" is modern terminology. He, however, did not go further and elaborate what it really is. Instead he went on to argue that those who handle motor vehicles know it or, at the very least they are expected to know it. With respect to the learned State Attorney, I think this is placing too much a burden on those who deal with G motor vehicles in one way or the other, and it is also pitching one's expectations unnecessarily high.

True to the appellant's allegation in Para 3 of the petition of appeal the learned trial Magistrate did indeed concede his failure too to comprehend what a 'bog steering' is. H This is clear from the portion of his judgment which reads, and I quote:

I would first of all wish to deal with this question of bog steering. Admittedly even after consulting many English Dictionaries I have failed to grasp what the vehicle inspector meant I when he said the bog steering was out of order.

Indeed if so then one wonders how the learned trial Magistrate expected the appellant to A understand as the duty in law was on him, i.e. the learned Magistrate, to read over and explain the charge to the appellant in a clear and simple language. All this said, I, most respectfully, agree with Mr. Mwakajinga that a "bog steering" does not exist in the present motoring world. I am not competent to talk of the future, which does not B concern us here anyway. At best it is a misnomer for, (as one of the witnesses speculated in the Court below) a Steering box. If so then why, it may be asked, was the charge sheet not amended accordingly?

Be it as it may one thing is clear in my mind and that is by containing something which is not known the charge is defective. The question that naturally arises next is, what effect C does the said defect have on the subsequent proceedings in the Court below?

This issue was, commendably, considered by the learned trial Magistrate in his judgment. He concluded by finding that the defect or error was not fatal because throughout the D trial both the prosecution and the defence proceeded on the understanding that the said 'bog steering' actually meant "the steering box". It is true, and this is apparent from the record of proceedings of the trial Court, that both the Prosecution and the defence took the "bog steering" to mean the Steering system. The evidence which was adduced in the case points to this fact. In the

circumstances I am not persuaded that the appellant was E embarrassed in putting up a defence, as the same was in line with the Prosecution case. In other words I am satisfied that the defect under querry did not occasion a miscarriage of justice. So much for this ground 3.

Now, turning to the factual background of this matter, evidence was adduced at the F hearing of the case in the Court below to the effect that the appellant company is owner of a motor vehicle registration No. SU. 1784, a landrover. On the date of incident, at about noon, the branch manager of the appellant company at Korogwe at that time, one Juma Riziki (DW1), instructed one of the company drivers, one Felix Mapunda (PW3), G to drive the said landrover to M/S Sikh Garage to have its windscreen, which had cracked, replaced. The said landrover was fitted with a lock. This was a precautionary measure against motor vehicle thefts. The locking device was fixed to the steering system of the landrover. Originally, this locking system and the ignition system of the H landrover were being controlled centrally and simultaneously; that is to say, immediately upon ignition of the engine of the landrover the lock was automatically opened. Upon switching off the engine and removing the ignition key the locking system was in operation: The steering would lock upon a light twist. I

1985 TLR p247

SISYA J

It is common ground that the centrally controlled mechanism of the ignition and locking A systems of the landrover developed some defects as a result of which each system had to be controlled separately. The key for the locking system had to be turned full and not half way before the vehicle was sent in motion.

The evidence shows that Felix (PW3), the appellant's driver, started the landrover by B connecting certain wires. He then set off for the garage. Following behind him was one Surinder Singh (DW3), an all round automobile engineer who worked for almost a decade in garages in Britain and Europe. He is also owner of the Sikh Garage. While C on the way Felix suddenly felt being pulled on one side. He tried to control the vehicle but failed. The landrover then knocked against a stationary lorry which was parked on the road side. Felix was injured in the accident. Mr. Singh took him in his own vehicle and rushed him to the hospital. He, i.e., Singh, swore that when he was removing Felix D from the landrover he saw the ignition key lying on the floor in the cabin.

The police were informed and both the appellant's landrover and the lorry were sent for inspection. The said inspection was done by a mechanical inspector called George who was employed by the then Ministry of Communication and Works and stationed here at Korogwe. The said George did not give evidence at the hearing of the case. It was E stated that he had gone out of Korogwe for medical treatment. His reports on both vehicles were, however, tendered and admitted in evidence at the trial in the Court below. The one in respect of the appellants landrover is P.1 and the one in respect of the lorry, registration no. TAJ 33 is P.2. The learned trial Magistrate purported to admit F the said motor vehicle inspection reports under Section 34B (2) of the Evidence Act, 1967.

With the greatest respect to the learned trial Magistrate, S.34B(2) is in respect of Written Statements. It does not deal with reports at all. For provisions of this section to come into play

all the conditions laid therein must fully be met or satisfied. At any rate G this provision of the law was misapplied here.

At the hearing of this appeal it was argued by Mwakajinga for the appellant company that the learned trial Magistrate misdirected himself on the evidence by placing too much reliance on a motor vehicle inspection report prepared by a person who was not duly H appointed in that field. The learned trial Magistrate dealt with the issue of George's appointment as a vehicles inspector in the following terms and I quote from his judgment:

A mechanical inspector in a Government institution is a very respected person. The I government cannot employ bogus inspectors

1985 TLR p248

SISYA J

to inspect its motor vehicles. It would be ridiculous to see competent vehicle inspectors A inspect public motor vehicle while the government motor vehicles are inspected by bogus inspectors. G.N.171/67 does not say that only Police officers are to be appointed examiners and inspectors of motor vehicles. It merely endorsed police officers who were by then gazette to assume the position of vehicle inspectors and B examiners provided they were competent drivers notwithstanding that they had a technical know how or not. But with the present case the motor vehicle had been inspected by a Comworks mechanical inspector. He is a person with technical know how. He is therefore an expert. In my view he was competent and so his report is C admitted in law as that of an expert.

With respect, this passage bristles with misdirections and misconceptions. It is perhaps convenient to start by looking at what the learned trial Magistrate had to say about this D very same man, George. He said, earlier in the same paragraph from which the above passage is quoted:

After perusing the vehicle inspection reports, Exhibit P.1 and P.2, this George appears to have inspected the motor vehicle on behalf of the inspector of vehicles. He doesn't seem to E suggest to the Court that he himself is also a vehicle inspector. His qualifications are not known either.

This passage contains the naked truth on this aspect of the matter. It beats my F comprehension, therefore, how the learned trial Magistrate, almost in the same breath and without more, proceeded to find the same George 'a person with technical know how', 'an expert' and competent to be a motor vehicle inspector. This is simply outrageous.

It seems to me that the learned trial Magistrate completely missed the point which was G raised by Mr. Mwakajinga for the Appellant on this aspect of the case. It must be borned in mind that the appointment of motor vehicle inspectors is a matter of law. The power to appoint vehicle inspectors is vested by law on the authority responsible for road traffic i.e. the Minister for Home Affairs and this power is conferred upon him by H Section 4(a) of the Road Traffic Act, no. 30 of 1973. As was, quite correctly in my view, pointed out by Mr. Mwakajinga in his address to the Court no such appointments have so far been made under this Act no. 30 of 1973. There was appointment of motor vehicles inspectors which was, however, made by Government

Notice no. 171 of 1967 I which was, with gratitude, brought to my attention by Mr. Mwakajinga.

1985 TLR p249

SISYA J

The said government notice no. 171 of 1967 was issued under the provisions of the A Traffic Ordinance, Cap. 168. Admittedly the said Cap. 168 was repealed by Act No. 30 of 1973. Section 117(2)(b) thereof reads:

(b) until new appointments are made under this Act, any appointments made under the Traffic B Ordinance repealed by this Act shall be deemed to have been made under this Act.

The head note of GN 171 of 1967 which, with great respect, the learned trial C Magistrate, does not appear to have read or, if he read it, and with even greater respect, he does not appear to have understood, reads:

Appointment of Inspectors and Examining Officers of Motor Vehicles. D

Para or Item 1 thereof reads:

1. All gazetted Police officers who are themselves competent drivers are hereby appointed to be inspectors and Examining officers for the purpose of examining E persons as to their competence in driving motor vehicles.

Now where does a mere endorsement for the assumption of some position by police officers appear in this piece of subsidiary legislation.

By vesting powers of appointment in the Minister of Home Affairs Parliament in its F undoubted wisdom knew what it was doing. Likewise by confining these appointments to gazette Police Officers, and not to any other person with the requisite technical know how, those who made that decision must have known what they were up to. For anyone to depart from the laid down procedure and law will be to stultify the whole G process designed and laid down by the legislature. In the wake of the current call to all to follow and respect the law I am not in the least attracted by the learned trial Magistrates reasoning on this aspect of the case.

Suffice it to say that George was not appointed a motor vehicle inspector. He was not H authorised by law to inspect the appellant's vehicle. The report, P.1, which he prepared was thus wrongly received and treated. The same must be and it is hereby extirpated from the record. This should be sufficient ground for this Court to allow this appeal because without George's report there is no basis for the charge. I

1985 TLR p250

SISYA J

Assuming that I am wrong on this point I have, nevertheless, considered if P.1 could be A taken as expert opinion. I am, however, not aware of any provision of the law on whose authority P.1 may properly be admitted as such. The difficulty is made the more by George's failure to testify at the trial. As the position stands, George still remains a person of dubious expertise. His special knowledge, skill, experience or training to B qualify him as an expert in this field of motor vehicles in unknown and, perhaps, this may be the source of the difficulty which has been experienced over his term "bog steering" in the case. Exhibit P1 is no expert opinion at all.

Again, assuming that the vehicles report, P1, was properly admitted and admissible, the C case for the defence was that there was absolutely nothing wrong with the stearing system as such. The defence argued that the steering locked because Felix (PW3) turned the key only half way and because of the vibrations while the landrover was in motion the said key then must have disentangled itself. D

The story that the steering was locked received support from the Prosecution own side. PW1, the driver of the other lorry, swore that he saw Felix try to struggle with the steering just before the impact. Had the learned trial Magistrate reviewed the evidence with judicial objectivity he would have found that the steering must indeed have locked. Had there been some other defect in the steering then certainly one would have expected E it to show excessive play and not to lock. On my evaluation of the evidence I am satisfied that the steering locked and the explanation given by the defence for so doing is, in all the circumstances of the case plausible. The fault was, indeed, that of Felix who F was careless in turning the key of the lock half way. That was no defect at all and I so hold.

Finally, turning to the windscreen. P1 shows that it was broken. The defence story given by D1, DW2, DW3 and DW4 is that it only had cracks and on the passengers side. According to the defence witnesses the said cracks did not let in air or water at all as the G windscreen had three layers of glass. The only evidence on this point was given by the defence. As aforesaid George himself did not give evidence. There is a difference between a broken windscreen and a cracked windscreen. In the absence of any direct evidence on this point on the prosecution side the defence version stands unshaken and H there was no reason which was advanced by the learned trial Magistrate for rejecting it. On my part cracked windscreen which lets in neither water nor air does not come within the ambit of section 39(1) of the Road Traffic Act.

Before I pen off, let me point out that it has not been easy for this Court to find or see I the basis for the order of compensation. This issue

was not properly before the Court, if at all. The learned trial Magistrate, therefore, A overstepped his bounds of propriety when he nevertheless made the order and he acted in excess of his jurisdiction.

All in all, for the reasons given I allow this appeal. The conviction is quashed and the sentence passed thereon is set aside. The fine which was paid should now be refunded B to the appellant company. The order of compensation is also set aside. It is ordered accordingly.

C Appeal allowed.

D

[zRPz]HUSSEIN ALLI KASWESWE v MZEE HAMISI KASWESWE 1985 TLR 252 (CA)

Court Court of appeal of Tanzania - Dar Es Salaam

Judge Mustafa JJA, Makame JJA, Kisanga JJA

October 8, 1985
CIVIL APPEAL 9 OF 1985 E
Flynote
Civil Practice and Procedure - Appeals - Appeal against orders - Appeal against an order on an application for directions of the court u/r 105 of the Probate Rules - Whether ruling of the court is appealable as of right -Civil Procedure Code, ss.3, 22 and Order 43, Rule 2. F
-Headnote
Following issue, by the High Court, of letters of administration to four administrators in a Probate and Administration Cause, one of the four administrators sold a house belonging to the estate, took his one fourth share of the money and deposited the rest in court for G collection by the other three. There was no fraud or improper practice in the whole transaction but the three other administrators wanted to remain joint owners of the property and were ready, for that purpose, to refund the purchase money. Pursuant to R.105 of the Probate Rules, they applied to the High Court for directions. The court H dismissed the application, and they appealed to the Court of Appeal.
Held: (i) The application was not something in the nature of a suit and the ruling of the court on it was not a decree with a right of appeal but an order and, so as to appeal I against the order, there was need to obtain leave to appeal from the High Court;
1985 TLR p251
Case Information
Order accordingly. A
No. cases referred to.
M. Marando, for the appellants.
S. El-Maamry and M. Raithatha, for the respondents. B
Judgment
Mustafa, J.A.: Letters of administration were issued in Probate and Administration Cause No. 44 of 1977 on 2.9.77 by the High Court to four administrators Hussein Ali Kasweswe, Mzee Bin Hamisi Kasweswe, Ashura Ali Kasweswe and Zuena Hamisi Kasweswe. C

On 26.9.79, three of the administrators Hussein, Ashura and Zuena filed a Chamber Application in the High Court asking for the annulment
of a sale of house No. 39, Kariakoo, belonging to the estate, by Hamisi to two buyers and for other consequential orders. Hamisi, as administrator had sold the house, and D had taken his one fourth share of the money and deposited the shares of the other three beneficiaries, the remaining administrators, in court for collection by the beneficiates.
There was no allegation of fraud or improper practices on the part of the vendor or purchasers in the sale transaction. The three applicants wanted the house to remain as E the property in their joint names, and were prepared to refund the money to the purchasers and pay the sum due to Hamisi.
The judge (Mtenga, J.) heard the application and held that in terms of section 100 of the Probate and Administration Ordinance Cap. 445, Hamisi as a single administrator had F powers to sell

the house and that the sale was proper in the circumstances and dismissed the application. The application was made pursuant to Rule 105 of the Probate Rules seeking for the court's directions. From that Ruling the three administrators are appealing to this court. G

Mr. El-Maamry for the purchasers and Mr. Raithatha for Hamisi raised a preliminary objection to the appeal and submitted that it was incompetent, as no leave to appeal has been obtained from the High Court. They referred to section 4(1)(C) of the Appellate Jurisdiction Act and submitted that the ruling of Mtenga, J. was an order and required H leave.

Mr. Marando for the 3 administrators submitted that the ruling was in fact a decree conclusively determining the issues in controversy between the parties and that there was a right of appeal without leave.

We have heard arguments from both sides and looked at sections 3, 22, order 43 Rule I 2 of the Civil Procedure Code and Rule 105 of the

1985 TLR p253

Probate and Administration Rules and we are satisfied that the application was not A something in the nature of a suit as the applicants only asked the court for directions by way of a chamber summons and no evidence as such was adduced. We are satisfied that the ruling was an order and as no leave to appeal was obtained from the High Court, the appeal is incompetent. It is struck out with costs. B

Order accordingly

1985 TLR p253

C

[zRPz]SEIF MARARE v MWADAWA SALUM 1985 TLR 253 (HC)

Court High Court of Tanzania - Mwanza

Judge Katiti J

June 10, 1979

PROBATE (PC) CIVIL APPEAL 37 OF 1978 D

Flynote

Administration of Estates - Application for appointment of administrator of deceased's estate - Duty of the court in appointing administrators.

Conflict of Laws - Application for appointment of administrator of a deceased's estate - E Conflict between Islamic Law and Customary Law - Primary court has jurisdiction to decide the law applicable.

-Headnote

The respondent sought and obtained from the Primary Court her appointment as an F administrator of the Estate of the deceased. She maintained that as the sister of the deceased she was entitled to administer the Estate under Islamic Law. The appellant, a nephew of the deceased's husband who had himself died much earlier, disputed the respondent's appointment

as administrator. His objections failed both in the Primary G Court and in the District Court, hence this appeal to the High Court.

Held: (i) On application for appointment of an administrator of a deceaced's estate, the duty of the court is to appoint as administrator a person who has an interest in the estate, H and according to the wishes of the deceased if any are expressed;

(ii) as the applicant in this case could only sustain his claim of having an interest in the Estate through Customary Law and the respondent could only sustain her similar claim through Islamic Law, either party may be the interested party depending on what law the court decided to be the law applicable; I

(iii) the Primary Court (having jurisdiction under both Islamic and

1985 TLR p254

KATITI J

Customary Law) applied no wrong principles in appointing the respondent the A administrator.

Case Information

Appeal dismissed.

No cases referred to. B

Judgment

Katiti, J.: Upon the demise of one Zena, one Mwadawa Salum the respondent herein, sought her appointment as an administrator of the estate she claimed was Zena's, in Musoma Urban Primary Court. Despite objections and protestations by C Seif Marare, herein to be referred to as the appellant, the respondent was on mere majority of assessors given judgement, and hence her appointment as an administrator of the claimed estate. The appellant unsatisfied, appealed unsuccessfully to the District Court. The District Court, having upheld the Primary Court's decision, the appellant has appealed to this Court. D

This, is therefore, the 2nd appeal, and this being the 2nd appellate court, that is not easily disposed to disturb concurrent finding of facts of the two lower courts, unless they are obviously wrong, the facts as rightly found are as follows. Late Masudi Magori and late Zena w/o Magori, were husband and wife. They were tribally different, but professed E and lived under the guidance of Islamic religion. Mwadawa Salum was, or, is the sister of Zena w/o Magori. The two spouses were living in a house, that is to be subject to administration.

Human life is short, and Masudi Magori's was no exception. He died only to be survived by his widow (then) Zena w/o Magori. On his death the question of F administration of his Estate was not raised. Zena Magori did not live too long thereafter, as she died too. The two spouses had been living in this house, that was in the name of late Masudi Magori. The house, has a history, that is curious though not ably challenged by the appellant or his witnesses. The evidence unhidingly disclosed, that the plot was G initially bought by Zena's mother from one Said Kisugura, and that after Masudi Magori's retirement as Prison warden, he lived in there with his wife Zena. After the death of Zena's mother the plot was transferred in the name of Masudi Magori by Zena herself. The two spouses were not survived by any child or children, and a period after H Zena's death, Mwadawa Salum, her sister, and a moslem too, sought and obtained her appointment as an administrator of estate. The appellant objects, saying she is not

entitled to be so appointed, while the respondent maintained, that, as a sister of late Zena, she was under Islamic Law very close, and therefore entitled to administer the estate. I
Having read the record, I have come out unhappily because, while
1985 TLR p255
KATITI J
at no time, did the respondent say she was seeking to inherit the property, although in A fact, she could ultimately be considered the right candidate, the Primary Court, and the District Court in particular treated it as an inheritance situation, and hence the latter's journey into the inheritance. However for the avoidance of doubt, I shall herein consider B her in the right perspective, that she was applying to administer the deceased's estate.
The Court's duties in such a situation is, on application by any person interested in the estate of the deceased to be administered, and with regard to any wishes which may have been expressed by the deceased, to appoint an administrator. It seems to me, that C unless the court considers otherwise, the person to be appointed must have an interest in the estate, and as per wishes of the deceased, if any had been expressed. In this case, the appellant's relation with the deceased - Masudi Magori is evidentially no more than that nephew. Masudi Magori died in 1963, and the fact that nobody came up with a D claim on the said house for such a long time creates a confident impression that late Zena Magori was considered owner or inherited of the said house. It was after the death of Zena Magori that this case came about,
The comparison of relationship between the appellant and late Masudi Magori, on one E hand, and the relationship of the respondent and Zena Magori on the other, provoke questions of laws of inheritance, and the conflict of the same. For while the appellant can only sustain his claim through customary law if applicable, the respondent may claim to inherit the house through Islamic Law, again if applicable. Thus considered in either F way, both parties are interested, in the estate depending on which law is applicable. It follows, in my view, that, if the respondent was appointed an administrator by the Primary Court, as it in fact did, it applied no wrong principles at all. I am therefore confirming the appointment, with a note of caution, that problems of inheritance in respect of the house, and which law to apply in solving the same, might arise when the G actual administration takes place. The appeal is dismissed with no order as to costs.
H Appeal dismissed

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Judges of the High Court of Zanzibar in 1984

1. The Hon. Mr. Justice A. Ramadhani Chief Justice

Cases Reported

A

[zRPz]KASSIMU YAKUBU MWINYIJUMA v COMMANDING OFFICER - JKT MADUTUPORA AND ANOTHER 1984 TLR 1 (HC)

Court High Court of Tanzania - Zanzibar
Judge Ramadhani CJ

July 21, 984.

B CIVIL APPLICATION 4 OF 1984

Flynote

Administrative Law - Declaratory application - Whether a public officer who completes a post - secondary course of a duration of nine months or more who is already over 35 years at the time of completion of his course is liable for call up to National Service.

C Statutory Interpretation - Repealing Act - Effect of repeal and replacement of an Act on rights and obligations acquired under the repealed and replaced Act.

-Headnote

The applicant was a public officer. He was picked by military police and taken to Makutupora D National Service Camp as a person liable for call up. After arriving at Makutupora, he pleaded on several occasions that he was not liable for call up, and produced documents to support his case, but was given promises of action which never materialised. In the end he decided to bring this E application seeking a declaration that he was not liable for call up to the national service by virtue of National Service Act, 1964 (cap. 553) and an order that he be discharged therefrom. The applicant argued that the courses he attended at Moshi and Lang'ata Kenya each lasted less than nine F months and that at the time he completed the accountancy course at Mzumbe he was already over 35 years.

Held: (i) A public officer who completes studies while he is above 35 years of age is not liable for National Service call up;

(ii) age is the central factor for determining whether one is liable for national service call up, G educational qualifications notwithstanding;

(iii) the National Service Act and the subsidiary legislation made thereunder, do not authorise anyone simply to arrest any person believed or suspected to be liable for call up and whisk him off to a national service camp;

H (iv) where an Act repeals and replaces another Act, such repeal and replacement does not operate to affect any right or privilege acquired under the repealed Act.

Case Information

I Application allowed.

No case referred to.

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LUGAKINGIRA J

B. Mwambe for the second respondent

[zJDz]Judgment

Lugakingira, J.: This was an application for a declaratory judgment. The application was brought A by Kassim Yakubu Mwinyijuma (hereinafter referred to as "the applicant") seeking a declaration that he was not liable for call up to the National Service by virtue of the provisions of the National B Service Act, 1964 (Cap. 553) and an order that he be discharged therefrom. In the application the applicant joined the Commanding Officer, Makutupora JKT 934, and the Attorney General. A summons was sent to the Commanding Officer requiring him to appear and be heard in the C application but for reasons I do not consider informed or respectful, the commanding officer refused to accept service and did not appear at the hearing. The Attorney General was represented by learned Attorney Mr. Mwambe.

The applicant was born on 21 June, 1939. He is now aged forty-five and has started to feel old. D When he grew up he went to school and eventually attained the General Certificate of Education (Ordinary Level) at the then Government Secondary School, Dodoma in December 1965. Immediately after leaving school he joined the Co-operative Division as a co-operative inspector. While in that E appointment he attended three short courses. He pursued the first course at the Co-operative College, Moshi which lasted from 4 January, 1968 to 4 April, 1968. The second course was similarly pursued at the Co-operative College, Moshi and lasted from 9

September, 1971 to 9 October, 1971. The third course was pursued at the Kenyatta Co-operative College, Lang'ata in Kenya and lasted F from 15 May, 1972 to 12 August, 1972. Then on 10 October, 1972 he moved from the Co-operative Division to the Audit and Supervision Fund where he was formally appointed on 18 October, 1972. He is still with the Fund todate. Perhaps I should add, although it is not necessary to do so, that the G Co-operative Division and the Audit and Supervision Fund are both departments in the Prime Minister's Office and under the Commissioner/Registrar of Co-operatives. In effect, therefore, the applicant remained under the same employer, the change of departments notwithstanding. While H working with the Fund the applicant proceeded to the Institute of Development Studies, Mzumbe in July 1974 to pursue a diploma course in accountancy. He completed this course in December 1978 and continued his employment with the Fund.

On 11 May, 1984, while along Kuu Street in Dodoma, he was picked up by the military police and, I despite protests, was taken to

A Makutupora National Service camp as a person liable for call up. He was not even permitted to bid farewell to his family of a wife and eight children but after persistent pleading he was only allowed to see his wife at her place of work before being conveyed to Makutupora. After arriving B there he pleaded on several occasions that he was not liable to call up, and produced documents to support his case, but was given promises of action which never materialised. I should also add here that until his apprehension he had never been served with a notice requiring him to join the National Service. His arguments in support of his case were I think threefold: first, that he had been a public C officer since December 1965; secondly, that the courses at Moshi and Lang'ata had each lasted less than nine months; and, thirdly, that at the time he completed the accountancy course at Mzumbe he was already over thirty-five years. In his brief submissions Mr. Mwambe for the D Attorney General conceded that the applicant was not liable for call up mainly on the ground of age. He did not therefore seek to oppose the application.

The National Service Act, 1964, to which where convenient I shall refer as "The Act", has since its enactment been amended not less than eight times. I therefore had the unenviable task of piecing E together the scattered legislation. As originally enacted in 1964 the Act enabled every male and female for national service. It was then a wholly voluntary affair. Then by Act No. 64 of 1966 the maximum age of eligibility was raised to thirty-five years and by Act No. 11 of 1971 the minimum age F was lowered to sixteen. Act No. 64 was significant in another way: It also introduced categories of persons who were liable to be called up for national service. This was achieved through s. 5 which also created the Third Schedule to the Act. It provided that every citizen, male or female, aged between eighteen and thirty-five and who was a member of the class specified in the Third Schedule G would be liable to have his name entered in the national service register and to be called upon to serve in the National Service. On the whole, these amendments were directed at persons who were to complete Form IV on or after 1 November, 1966 or who had enrolled or were to enrol at any H university and ceased for any reason to be

students on or after 21 October, 1966 or persons who, having completed Form IV, had enrolled or were to enrol at educational institutions specified in the Third Schedule and cease for any reason to be students on or after 21 October, 1966, except for I persons who, inter-alia, were public officers at the commencement of the Act. The Schedule specified twenty-one institutions among which was Mzumbe Local Government Training

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LUGAKINGIRA J

Centre but not the Co-operative College, Moshi or the Kenyatta Cooperative College, Lang'ata. A Subsequently, the Third Schedule was repealed and replaced by a new schedule vide Government Notice No. 123 of 1970 which was published on 15 May, 1970. The new Schedule set out a longer list of educational institutions which now included the Co-operative College, Moshi and what was then B called the Mzumbe Local Government and Rural Development Training Centre but, again, not the Kenyatta Co-operative College, Lang'ata. There was a further innovation in the new schedule whereby exception was made to persons who, having become public officers after the commencement of the Act, attended in-service courses at the specified institutions where the C duration of the course was less than nine months. The new schedule was in turn repealed without replacement by Act No. 31 of 1974 but its import was incorporated in the present s.5B of the Act. The law as it stands today, therefore, and in so far as it is relevant here, is that every male or female D citizen aged between sixteen and thirty-five and who, having completed Form IV, subsequently enrols in any post-secondary school institution anywhere for a course of studies and ceases to be a student of such institution either because of the completion of the course or because he has abandoned the course after being a student for not less than one-half of its duration, is liable to be E called up. With this background, we can now proceed to determine the position of the applicant. But I should hasten to say that the Act needs to be rationalised and reprinted in one document.

As stated before the applicant took his first post- Form IV courses at the Co-operative College, F Moshi and this lasted from 4 January, 1968 to 4 April, 1968, a period of three months. The original third Schedule did not make a distinction on the duration of a course. But as we have also seen, the Co-operative College, Moshi was not specified in that schedule. Instead, that College came to be specified in the new schedule vide Government Notice No. 123 of 1970. The question now is whether G the applicant became liable for a call up by virtue of Government Notice No. 123 of 1970. I do not think so. In our jurisprudence where an Act repeals and replaces another Act, such repeal and replacement does not operate to affect any right or privilege acquired under the repealed Act. This H principle is embodied in s.14 of the Interpretation of Laws and General Clauses Act, 1972, the relevant parts of which I will quote:

"14. Where an Act repeals any provision of another Act, then unless the contrary intention appears, the I repeal shall

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LUGAKINGIRA J

A (a) revive anything not in force or existing at the time which the repeal takes effect; or

(b) ....,

(c) affect any right, privilege, obligation or liability acquired, accrued, or incurred under the provision so B repealed; or...

Under s.3(1) of the Interpretation Act the term "Act" is defined to include any subsidiary legislation. Government Notice No. 123 of 1970 was therefore an Act which repealed and replaced a provision of C the National Service Act, 1964, namely, the original third schedule thereto. Since the Co-operative College, Moshi was not specified under the original schedule, it follows, in my view, that the applicant had acquired an exemption from the National Service notwithstanding the first course he D pursued at the said College and this exemption, in the absence of contrary intention, was not affected by the subsequent inclusion of that college in Government Notice No. 123 of 1970. It further follows that the applicant continued to enjoy the same exemption when he took the second course from 9 September, 1971 to 9 October, 1971. This is so because although now the College was E specified under Government Notice No. 123 of 1970, that did not operate to deprive him of the exemption already acquired under the original schedule. To put it shortly and differently, once exempted, always exempted. I may be held wrong and it may be shown that the operation of F Government Notice No. 123 of 1970 was not limited by the apparent short-comings of the original schedule. Even so, the applicant's position would remain unaltered. Government Notice No. 123 of 1970 was expressed as not applicable to persons who, having become public officers after the commencement of the Act, attended in-service courses at the specified institutions the duration of G which was less than nine months. The applicant became a public Officer after the commencement of the Act, that is, in December 1965 and each of the two courses he pursued at the Co-operative College, Moshi lasted less than nine months. He was therefore still exempted. I do not have to say H anything about the third course at Lang'ata for that college appeared neither in the original schedule nor in the subsequent schedule and even the course the applicant pursued there similarly lasted less than nine months. At this stage, too, I do not have to say anything about Mzumbe for I the applicant never enrolled there until July 1974 when he was already over thirty-five. But if I were compelled to do so, I would say that even if the applicant had enrolled at Mzumbe before attaining the age of thirty-

five, he was then already a public officer and the issue would then have depended on the duration of A the course. I only wish to examine the issue of Mzumbe as respects the accountancy course he pursued there from July 1974 to December 1978.

Perhaps I should start off by making some general propositions as a result of my reading s.5B of the Act as repealed and replaced by Act No. 31 of 1974. It is clear to me that the conditions for call up B are complementary but age is the central factor about which the rest oscillate. In other words, the operation of the educational qualifications is limited by the age factor. I will illustrate this. A person completes form VI and he is at the time aged below thirty-five; he is liable for call up. A person C completes Form IV and pursues a post-secondary school course which he completes or abandons midway before turning thirty-five; he is liable for call up,

unless he is already a public officer and the course is of a duration not exceeding nine months. A corollary to these propositions is that where a D person completes Form VI or completes or abandons midway a post-Form IV course AFTER turning thirty-five, he is NOT liable for call up. It may probably be asked whether a person would be E liable for call up where, being in possession of all the qualifications necessary for call up, he succeeds somehow to elude the event until he turns thirty-five. That would, undoubtedly, be an interesting question; but since it does not arise in this application I would not take on myself the burden of a definite opinion. I can only observe that the National service scheme is intended for young citizens as expressed in s.3(2) of the Act. F

We can now apply the above principles to the facts pertaining to the applicant. The applicant was born on 21 June, 1939 and celebrated his thirty-fifth birthday on 21 June, 1974. He enrolled at Mzumbe in July 1974. By that time, therefore, he had already exceeded the age limit necessary for being called up. For this reason and others already stated, I am of the view that the application has G merits and ought to succeed. For the avoidance of doubts I would mention again that the Attorney General did not seek to resist the application.

Before concluding I desire to make an observation on a matter that occasioned me considerable H anxiety. I am having in mind the way and manner the applicant found himself at Makutupora. We have already seen how he was picked up and conveyed to the camp without much ceremony and he had never before been served with a call up notice. The Act sets out the ways in which a person I liable for call up may join the National Service. They are two and are spelt out

A in s.5F(1) and (3). The first is for the person liable for call up to present himself in person to the Registrar within thirty days of his becoming liable. If he fails to do so without reasonable cause he may be prosecuted and punished. The second way is for the Registrar to serve such person a B written notice stating that he is called up for national service and requiring him to present himself at such place and time, and to such authority, as may be specified. If the person fails without reasonable cause to so present himself he may be prosecuted and punished. I was unable to find any provision either in the Act or in the subsidiary legislation made thereunder which authorises C anyone simply to arrest any person believed or suspected to be liable for call up and whisk him off to a National Service Camp. It seems to me, therefore, that the manner the applicant was dealt with was rather overzealous, if not unlawful, and, in the circumstances described by him regrettable. If it D is felt that the existing machinery is not sufficiently helpful the best way to go about it is to secure an amendment to the law.

In conclusion, I allow the application and declare that the applicant is not liable and has never been liable for call up to the National Service. I accordingly order that he should be discharged forthwith E unless on his own election he remains in the camp.

Application Allowed.

F

[zRPz]ROBERT ARANJO v ZENA MWIJUMA 1984 TLR 7 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Maina J

March 14, 1985
G CIVIL APPEAL 22 OF 1984
Flynote
Family Law - Division of matrimonial assets upon dissolution of marriage - Whether court has to consider extent party has contributed to the breakdown of marriage for the purpose of division of matrimonial assets - H Law of Marriage Act, 1971, s.114
-Headnote
This is a second appeal by Robert Aranjo. The Primary Court granted divorce and also ordered that I the appellant should pay his former wife, the respondent, the sum of Shs. 70,818/50 being one quarter of the matrimonial assets acquired during the subsistence of the
1984 TLR p8
MAINA J
marriage. The subsequent appeal by the appellant was dismissed by the District Court and hence the A present appeal.
Held: (i) Section 114 of the Law of Marriage Act, 1971 does not make a distinction for the purpose of division of matrimonial assets between an innocent and guilty party; B

(ii) there is no provision in the Law of Marriage Act requiring the court to consider to what extent a party has contributed to the breakdown of the marriage for the purpose of division of matrimonial assets.
Case Information
Appeal dismissed C
Case referred to:

1. Bi Hawa Mohamed v Ally Sefu Court of Appeal Civil Appeal No. 9 of 1983; D

[zJDz]Judgment
Maina, J.: This is a second appeal by Robert Aranjo. He had petitioned for divorce at the Kilosa Urban Primary Court against Zena Mwijuma who was then his wife. The Primary Court granted the E divorce and also ordered that the appellant should pay his former wife, the respondent, the sum of Shs 70,819/50, being one quarter of the matrimonial assets acquired during the subsistence of the marriage. The appellant filed an appeal in the District Court, and after full hearing the appeal was dismissed.
The appeal before this court is not against the dissolution of the marriage but it is against the order F giving the wife one quarter of the matrimonial assets. The ground for this complaint is that, according to the appellant, the marriage was dissolved due to the wife's desertion and not on appellant's cruelty as held by the District Court. The appellant also claims that the respondent did not contribute anything in the acquiring of those assets. One thing, however, was beyond dispute. G All the assets were acquired during the subsistence of the marriage.

Let me point out that the order for division of matrimonial assets was made under section 114 of the Law of Marriage Act, 1971. The court has powers, when granting a decree of divorce or separation, H to make an order for division of matrimonial assets acquired during the marriage by the joint efforts of the parties. The appellant claimed that all the assets were acquired in his own name.

But they were acquired after he was married to the respondent during subsistence of the marriage. I The respondent was a housewife. The

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MAINA J

A appellant said he acquired those assets through his own efforts. There has been a lot of dispute as to whether the domestic work done by a housewife should count in the acquisition of matrimonial assets. That

B dispute was settled by the Court of Appeal in the case of Bi Hawa Mohamed v Ally Sefu in Civil Appeal No. 9 of 1983. In that case, the Court of Appeal held that the contribution of a spouse to the welfare of the family should be considered as contribution to the acquisition of matrimonial assets. In this case, while the respondent looked after the house and the welfare of the seven children of the marriage apart from other household chores like cooking, the appellant was able to run his business C and acquire the assets. All the assets were therefore acquired by the joint efforts of the parties. The respondent was entitled to a share.

The appellant further argued that the District Court should have held that the marriage was D dissolved due to the respondent's desertion and not due to the appellant's cruelty. There was evidence that the respondent left the matrimonial home due to the acts of the appellant and those acts were held to amount to cruelty. Be that as it may, the marriage had broken down irreparably and it had to be dissolved. There is no dispute about that. Now, whether the appellant was guilty of E cruelty or the respondent was guilty of desertion, it makes no difference as regards division of matrimonial assets. Section 114 of the Law of Marriage Act does not make a distinction for the F purpose of division of matrimonial assets between an innocent and guilty party. There is no provision in the Law of Marriage Act requiring the court to consider to what extent a party has contributed to the breakdown of the marriage for the purpose of division of matrimonial assets.

There was ample evidence upon which the lower courts held that the value of the matrimonial assets G was Shs. 282,474. The lower courts considered and gave good reasons for awarding the respondent one quarter of the value of those assets, that is, Shs. 70,818.50. The respondent was not only doing domestic work. She even had assisted in the appellant's bakery business. The marriage had lasted for many years, from 1968 till 1982 when it was dissolved. There were seven children of H the marriage, all living with the appellant. All these were relevant factors. I cannot say that the lower courts erred in awarding the respondent one-quarter of the matrimonial assets. In the result, this appeal is dismissed with costs.

I Appeal dismissed.

1984 TLR p10

A

[zRPz]YASINI MIKWANGA v REPUBLIC 1984 TLR 10 (HC)

Court High Court of Tanzania - Mtwara
Judge Msumi J

March 27, 1985
CRIMINAL APPEAL 15 OF 1982
Criminal Law - Contempt of court - Accused refuses to answer a question from a co-accused - Presiding B magistrate overrules such objection - Accused still refuses to reply - Whether accused is guilty of contempt of court, (s.114(2) of the Penal Code).

Criminal Practice and Procedure - Contempt of court - Magistrate convicts accused person in a summary proceeding without drafting a charge of contempt of court - Whether failure to do so occasioned a failure of C justice.
-Headnote
The appellant and three other persons were charged with shopbreaking and stealing contrary to section 296(1) and 265 of the Penal Code. In his defence, the appellant opted to testify on D affirmation, and while he was being cross examined by one of his co-accused, appellant refused to answer one of the questions put to him contending that it was irrelevant. The District Magistrate E overruled the objection and ordered the appellant to answer the question, but the appellant refused to answer it. It was at this juncture that the magistrate decided to take cognizance of the alleged contemptuous conduct and summarily convicted him under the provision of section 114(2) of the Penal Code.
Held: (i) In every case where the court rules out that the witness should answer the question, then F the witness ought to comply, except where he is impaired by physical infirmity or otherwise;

(ii) unlike in formal criminal charge, there are no set rules which a magistrate is required to comply with in drafting a charge of contempt of court under summary proceedings; it is enough for G him to explain to the accused the gist of his offensive conduct, the particular provision of the law which contravenes it and give him an opportunity to make a reply. H
Case Information
Order accordingly
Cases referred to:

1. Joseph Odhengo s/o Ogongo v R. (1954) 21 E.A.C.A. 302.
2. A.G. v Butterworth (1963) 1.Q.B. 696 I

1984 TLR p11
MAINA J
A Y.A.S. Mchora for the Appellant.
[zJDz]Judgment

Msumi, J.: Appellant was summarily convicted of contempt of court contrary to section 114(1)(b) of the Penal Code. He was sentenced to six months imprisonment.

B What happened is that appellant and three other persons were charged with shopbreaking and stealing contrary to section 296(1) and 265 of the Penal Code. In his defence appellant opted to testify on affirmation. And while he was being cross examined by one of his co-accused, appellant C refused to answer one of the questions put to him contending that the same was irrelevant. It would appear the alleged question concerned a case of which appellant was previously convicted. The learned trial district magistrate overruled the objection and ordered the appellant to answer the question. But appellant stuck to his guns; he refused to answer the question. It was then when the D learned trial magistrate decided to take cognizance of the alleged contemptuous conduct and summarily convicted him under the provisions of section 114(2) of the Penal Code.

The learned defence counsel, Mr. Mchora submitted, as his first ground of appeal, that the alleged E offensive conduct of the appellant did not amount to a contempt of court. This view was emphatically shared by the learned Senior State Attorney on behalf of the Republic. With respect, I am of the contrary opinion. Appellant's conduct clearly contravenes subsection 1(b) of section 114. F It appears both learned counsel have in their minds either subsection 1(a) or 1(i) of section 114. Otherwise it is incomprehensible how the conduct of the appellant can be excluded from being contemptuous under subsection 1(b). Perhaps I may do a great service to the learned counsel if I quote the said subsection:

G "114 (1) Any person who -

(a) ....

(b) having been called upon to give evidence in a judicial proceeding, fails to attend or, having attended refuses to be shown or to make an affirmation, having been sworn or affirmed, refuses without H lawful excuse to answer a question or to produce a document or other thing, or remains in the room in which such proceedings is being had or taken, after the witnesses have been ordered to leave such room; is guilty of a misdemeanour, and is liable to imprisonment for six months or to a fine not exceeding five I hundred shillings (the emphasis is mine).

1984 TLR p12

MAINA J

It is true that as an accused, appellant was not a compellable witness hence it cannot be said that he A was called to give evidence. But once appellant had opted to testify in the witness box he automatically subjected himself to all rules governing witnesses. For example like other witnesses he was required either to affirm or swear and he was subject to cross examination. In this case when the B appellant refused to comply with the trial magistrate's order that he should answer the question he was clearly contravening the provision of subsection 1(b) of section 114. In Joseph Odhengo s/o Ogongo v.R ((1954) 21 of E.A.C.A. 302 appellant was summarily convicted of contempt of court contrary to section 116(1) (b) of Kenya Penal code which is in pari materia to our section 114 1(b) of C the Penal Code. In principle the Court of

Appeal for Eastern Africa agreed with the trial judge that appellant's refusal to answer questions put to him as a witness was contemptuous.

Perhaps one of the questions which may arise at this juncture is whether appellant had lawful excuse D not to answer the question notwithstanding the court's order that he should do so. I am of the view that except where the witness is impaired by physical infirmity or otherwise, in every case once the court rules out that the witness should answer the question then he ought to comply, otherwise E he will be liable for contempt. The trial court's order might be legally wrong; for example where the magistrate allows question which has the effect of extracting some inadmissible evidence such as previous conviction, as in this case. All the same, that order must be obeyed. Any contrary view will F have the undesired effect of creating an impasse in the conduct of the trials. The cardinal aim of creating the offence of contempt of court is to arrest all conducts which are aimed or reasonably feared to be aimed at interfering with proper administration of justice. As pointed out by Lord Donavan in A.G v Butterworth [1963] 1 Q.B. 696 that: G

> The question to be decided... in all cases of alleged contempt of court, is whether the action complained of is calculated to interfere with the proper administration of justice. There is more than one way of so interfering". H

No doubt one of the essential conditions for proper administration of justice is that there should prevail discipline in court throughout any trial. This condition will definitely be undermined if any party in the trial was to be allowed with impunity to defy an order of the court on the ground that the I said order is illegal or

A otherwise improper. I don't think that the legislature meant to tolerate such condition when it impliedly exempted a witness, under s.114(1)(b), from answering a question by giving lawful excuse. Any statutory provision which directly or indirectly purports to strip off the courts' inherent power B of maintaining law and order in the course of a trial must be viewed with circumspection.

In his second ground of appeal the learned defence counsel submitted that the trial magistrate ought to have framed a charge which should have contained the gist of the purported contemptuous C conducts. The learned counsel is of the opinion that the trial magistrate failed to do so hence there resulted a failure of justice. Again the learned Senior State Attorney found this argument irresistible. With respect, I am again unfortunate in finding myself holding a different view. I admit that section 114(2) under which courts are allowed to take cognizance of certain contemptuous conducts and D convict a person summarily has been repeatedly interpreted by this court and courts above as requiring the magistrate to frame a charge before a summary conviction is entered. Thus when dealing with a similar provision in the Penal Code of Kenya in Ogongo's case the Court of Appeal said:

E The observation which we wish to make on this is that, when a Court takes cognizance of an offence under the provision of section 116(2) it is in fact assuming and exercising a jurisdiction to deal summarily with the F offence and that in every such case, it is essential that

the court should frame and record the substance of a charge, call upon the person accused to show cause why he should not be convicted on that charge, and give him a fair opportunity to reply.

G I am of the opinion that this requirement is sufficiently complied with where a magistrate adopts any procedure which has the practical effect of notifying the accused of the gist of his offensive conduct and afford him an opportunity to reply. Unlike a formal criminal charge, there are no set H rules which a magistrate is required to comply with in drafting such a charge under summary proceeding. In determining whether the provisions of subsection (2) of section 114 have been complied with the question should be whether the court took the necessary step in explaining to the accused the gist of his offensive conduct, the particular provision of the law which contravenes it, I and lastly give him an opportunity to make a reply. There is no magic formula for attaining these ends. Thus in Ogongo's case the Court

of Appeal was of the opinion that these ends have been adequately attained by the trial judge when A he recorded:

A. Charged with refusing without lawful excuse to answer a question contrary to section 115(b) Penal Code. Court takes cognizance of offence under section 116(2) and sentences A, etc. B

Of course in that case the Court of Appeal was also influenced by the fact that the trial court record showed that appellant had been persistently warned by the court to answer questions but in vain. In C the present case, before convicting the appellant the learned trial magistrate recorded:

Court: This accused witness has been repeatedly warned by the court to answer questions put to him by his co-accused but he has deliberately refused to answer. This is, in my view a disrespect to the court and as D such the accused witness has committed the offence of contempt of court contrary to section 114(1)(b) of the Penal Code, Cap. 16.

The accused witness is therefore asked to state his reasons as to why he should not be punished for E contempt of court.

Accused witness states: I have refused to answer the questions put to me by the co-accused (No.3) because they are irrelevant to this instant case except that they are relevant to the previous case (Cr.C. No. 30/81) F which has already been determined by this court on 26/6/1981. I repeat again that I am not going to answer the accused's question in this cross-examination.

And after the appellant's reply, the learned trial magistrate summarily convicted the appellant. With G respect, I am quite convinced that from the court record as quoted above the learned trial magistrate slavishly complied with the provisions of subsection (2) of section 114. The learned defence counsel's argument, which unfortunately was not challenged by the learned Senior State Attorney, as a ground for this appeal is dismissed. H

However, I totally agree with both learned counsel that the sentence of six months' imprisonment imposed against the appellant is illegal. According to section 114(2) under which

the summary conviction was entered, the maximum sentence which a court is empowered to impose is a fine of I four hundred shillings or one
1984 TLR p15
A month's imprisonment in default. It is only where accused has been convicted through normal indictment that the court is empowered to impose a maximum sentence of six months or a fine not exceeding five hundred shillings.
B In conclusion appeal against conviction is dismissed. But on the ground of illegality, appeal against sentence is allowed. Hence the sentence of six months' imprisonment is set aside and in substitute appellant is sentenced to imprisonment for one month. This alteration of sentence is of no beneficial value to the appellant as he has already completed serving the said illegal sentence. It is, C however, important for record purposes.
Order accordingly.
1984 TLR p15
D
[zRPz]MULBADAW VILLAGE COUNCIL AND 67 OTHERS v NATIONAL AGRICULTURAL AND FOOD CORPORATION 1984 TLR 15 (HC)

Court High Court of Tanzania - Arusha
Judge D'Souza Ag J

December 3, 1984
Flynote
E Land Law - Acquisition of land under the Land Acquisition Act, (No. 47 of 1967) - Procedure to be followed.
F Land Law - Acquisition of land under the Land Acquisition Act (No. 47 of 1967) - Whether Act applies to the land belonging to peasants.
Land Law - Right of Occupancy - Whether land held under customary tenure falls under the definition of G right of occupancy - Whether authorities can grant a formal right of occupancy in respect of Land held under customary tenure, i.e. deemed right of occupancy.
-Headnote
H The plaintiffs, a village council and 67 villagers of the same village sued the National Agricultural and Food Corporation (NAFCO) for a large tract of land in Hanang District, damages for trespass and other related reliefs. Detailed facts of the suit appear in the judgment.
I Held: (i) The Land Acquisition Act No. 47 of 1967 applies also to land held under customary tenure;
(ii) the definition of rights of occupancy under the land
1984 TLR p16
D'SOUZA Ag J
Ordinance Cap. 113 and Act 47/1967 includes titles of peasants holding land under customary A tenure;

(iii) The Mulbadaw Village council and Mulbadaw Villagers were lawfully possessing land and they could only be deprived of their land by due operation of Law, not by mere blessings of the government and party leaders in Hanang District and Arusha Region; B

(iv) the provisions of the Land Acquisition Act (No. 47 of 1967) were not followed in acquiring land belonging to Mulbadaw Village Council and Mulbadaw Villagers and therefore such acquisition was unlawful; C

(v) where someone is in lawful occupation of land no valid right of occupancy can be offered to anyone else over the same land unless the provisions of the Land Acquisition Act (No. 47 of 1967) have been complied with.

Case Information

Order accordingly. D

No case referred to.

Musei for plaintiffs

Jundu for the defendant E

Editorial Note: National Agricultural and Food Corporation successfully appealed to the Court of Appeal against this decision in Civil Appeal No. 3 of 1985 (to appear in 1986 T.L.R). F

[zJDz]Judgment

D'Souza Ag. J.: In this suit Mulbadaw village council, registered under the Villages and Ujamaa Villages (Registration) Act 1975 and sixty seven villagers of the same village, in their individual capacity are suing the National Agricultural and Food Corporation (hereinafter referred to as G NAFCO) for a large tract of land in Hanang District, damages for trespass and other connected reliefs. Originally the first plaintiff was stated as Mulbadaw village. On 24th of October 1981 in ruling on a preliminary matter Chuwa J. allowed an amendment of the plaint to put the Mulbadaw village H council properly on record. The land itself in dispute is 6095 acres of pasture land and 200 acres of arable land claimed by the first plaintiff as its property and another 1839 acres of arable land claimed as theirs by the rest of the plaintiffs.

At the beginning of the trial the following issues were agreed on by the parties and adopted as issue I in the case.

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A (1) Was the 1st plaintiff owner of 200 acres of farming land and 6,195 acres of pasture land at Mulbadaw village?

(2) Were the 2nd to 67th plaintiffs lawful owners of 1,830 acres of land at Mulbadaw and did the defendant B occupy 3000 acres of land belonging to the plaintiffs and destroy three houses belonging to the 8th, 66th and 67th plaintiffs?

(4) In March 1980 did the defendant occupy another 3000 acres of land belonging to the plaintiffs and destroy six houses belonging to 41st, 46th, 54th, 57th, 58th and 61st plaintiffs?

C (5) In December 1980 did the defendant set on fire and destroy twenty four homesteads belonging to 3rd, 4th, 5th, 10th, 11th, 14th, 15th, 16th, 17th, 19th, 22nd, 24th, 33rd, 35th, 36th, 43rd, 44th, 45th, 48th, 49th, 50th, 55th, and 62nd plaintiffs; and destroy in these houses stored crops valued at Shs. 4,800 and also destroy 4281/2 acres of growing maize and beans?

D (6) If the defendant did the actions in issues 3, 4 and 5 above, were their actions lawful?
(7) What reliefs, if any, are the parties entitled to?

E In the defendant's written statement of defence the defendant raised an issue that the plaintiffs had no mandate from the Mulbadaw village council to institute the suit. At the time of framing the issues this was not raised as one of the issues but defendant's counsel cross-examined the plaintiffs' witnesses on it and again raised it in submissions at the end of the case. Counsel for the F defendant also went on to argue that only a few of the 67 villagers gave evidence and as the few had no authority to appear on behalf of the others the claims of those who did not testify ought to be dismissed. Although these arguments were not framed as issues at the beginning they are issues G apparent from the pleadings, the evidence on record and the submissions of both counsel. Under Order XIV rule 5(1) I propose to deal with these as additional issues.

The defendant does not deny that the Mulbadaw village is a registered village under the Villages and Ujamaa Villages Act 1975. PW4 Jonas Samu is the Chairman of the village council. As such he H would be the natural and legal spokesman and representative of the village council. He was not cross-examined on the issue of mandate and his statement, in answer to a question from the court, to the effect that the village council had authorised the filing of the suit stands unchallenged. PW3 I Mohamed Abdi was a member of Mulbadaw village council until the end of 1981. The defendant tried to show that he was not resident in the village. However he had land

in the village and the villagers accepted him as a member of the council. PW3's evidence that he was A a resident of Mulbadaw until events forced him to move in 1981 was supported by the evidence of PW1 Frederick Tluway the Katibu Kata (Ward Secretary) of Bosanta in 1974. We stated that PW3 Mohamed Abdi was resident in Mulbadaw even before May 1974. Counsel for the defendant has B brought to the attention of this court the evidence of DW6 Andrew Dally, DW9 Sebastian Gidamashghu, DW3 Joseph Kamili to the effect that Mohamed Abdi was a resident of Endasak and not Mulbadaw. On this issue I believe I have to take the evidence of the defence witnesses with a grain of salt. The evidence of DW4 Karoli Flavian, taken together with Exhibit D.18 shows that C Mohamed Abdi had an old house and mature trees around this house. DW 7 M.A.O. Mwengamba, probably in an unguarded moment, stated, "After this (The meeting of 25.7.79) many villagers moved out but a few objected - e.g. Mohamed Abdi, Hassan Abdi, Ami Habiye .." I also note that when the D plaintiffs filed their amended plaint they also filed a document authorizing their counsel Mr. F.K. Musei to sign the plaint on their behalf and authorizing the plaintiffs Welwel, Mohamed Abdi, Ami, Yusuf and Bangi to represent them in the suit. On these preliminary issues I therefore find in favour of the plaintiffs. E

In this case although the issues, for purposes of convenience were split into six, there is one central issue that is paramount and on which the entire decision will necessarily rest. This issue arises from paragraphs 4 to 6 of the written statement of defence. The defendant does not deny that it entered into and still occupies land at Mulbadaw. It pleads however that it has been

carrying out a lawful F Tanzanian national project, the Mulbadaw wheat project, covering 10,000 acres - part of the Hanang Wheat Complex covering 70,000 acres under the Canada - Tanzania Wheat Programme- the area having been identified by the Government for that purpose. In paragraph 5 of the written statement G of defence the defendant states that in order to give way to the said national project the Government and Party (C.C.M) authorities had more than once ordered and notified Mulbadaw villagers to vacate the areas identified for the project. In paragraph 6 the defendant asserts that since H identification of the area for the project by the government the defendant has maintained a lawful occupation of the land as per government directives.

During the course of the hearing of this case the defendant added another fact to its defence. Although the defendant did not apply to amend the written statement of defence I find that both I

A parties led evidence and cross examined on this aspect and I find that in order to do justice between the parties and to sort out the real issues in controversy between them it is necessary to make a decision on this aspect too. This is to the effect that NAFCO has a lawful right of occupancy over the disputed areas.

B Before coming to the decision on the issues, let us consider the defendant's evidence on them. DW.1 Sadiki Omar Libembembe, an Administrative Officer with NAFCO testified that in 1960 the Government started research into the possibilities of large scale growing of wheat in Hanang C District. He produced as exhibit D.1 a Plan made by the British Government's department of surveys and issued by the Ministry of Land and Housing. He stated that in 1969 the Kilimo Department started Bassotu Wheat Scheme and in the same year NAFCO was established by Act 17 of 1969. He D produced photo copies of the national development plans showing that the wheat projects in Hanang were part and parcel of national development plans. On the question of how the projects were implemented vis-a-vis the peasants already in occupation of land in the marked areas he said this:

E When we start a project the peasants are informed through the instruments of the Government and the Party. A letter is written from NAFCO Headquarters to the Regional Party Secretary who was then also the F Regional Commissioner. He then spreads the message to the villagers through the Katibu Kata, etc. The NAFCO Manager in the area also assists in the spread of the information

DW7 MAO Mwengamba, Manager of Mulbdaw wheat project, on this aspect had this to say:

G In the 1980/81 season we had to move people out. The procedure followed was to inform the Katibu Kata of the affected area. On 29.3.1979 I saw the Katibu Kata to inform him to move out the peasants who were in the area earmarked for expansion.

H This witness went on to explain how NAFCO Officers held a meeting on 25.7.79 with the Mulbadaw village authorities who were accordingly informed of the boundaries of Mulbadaw farm.

I On the second facet of the defendant's defence a number of witnesses testified - the main one being one T.M. Hyera (DW2) of the Land Office at Arusha. According to this witness an application

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D'SOUZA Ag J

by NAFCO for 22,793 acres of land at Bassetu was approved by the Regional Land Advisory A Committee and by its letter AR/R/1009/22 of 20.1.1973 to NAFCO the Land Office made a formal "offer" of a right of occupancy. There is no evidence on record that this offer of 20.1.73 was accepted and registered. Instead there is a request for a resurvey and division and new offers for smaller units. Accordingly another offer (Ex. D.16) was issued to NAFCO for the Mulbadaw area - B dated 29.7.1981. The same was accepted and fees were paid in August 1981. The offer document was signed by NAFCO in July 1981. The Right of Occupancy was for 99 years back-dated to 1.7.1979. C

At the end of the case for both sides the court specifically directed both counsel to submit on the applicability of Act 47/1967 Land Acquisition Act. Both counsel, Mr. Jundu and Mr Musei did so. Section 3 of the said Act authorizes the President to acquire land where such land is required for any public purpose. S.4(2) provides: D

> Where the President is satisfied that a corporation requires any land for the purpose of construction of any work which in his opinion would be of public utility or in the public interest or in the interest of the national economy, he may, with the approval, to be signified by resolution, of the National Assembly and by order E published in the gazette, declare the purpose for which such land is required to be a public purpose and upon such order being made such purpose shall be deemed to be a public purpose for the purpose of this Act. F

Section 6 of the same Act provides that if the President resolves that any land is required for a public purpose the Minister (for lands) shall give notice of such intention to the persons interested or claiming to be interested in such land. Section 7 provides that the Minister may provide by notice G under s.6 or subsequent notice directing the person concerned to give up possession within a specified period not less than six weeks from the date of publication of such notice in the gazette. The President may, in urgent cases, certify so and possession may be obtained in a lesser period. Section 8 provided for the mode of publication of the notices. H

Counsel for the defendant has argued that the Act is not applicable to land held by peasants under customary land tenure and only applies to formal rights of occupancy. This court is unable to agree. The definition of right of occupancy under Cap. 113 of the Land Ordinance and Act 47/67 includes I titles of peasants holding

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A land under customary tenure. Furthermore s.17 of the Land Acquisition Act provides that where any question arises respecting title to any land the party in possession shall be deemed to be lawfully entitled to such land unless the contrary is shown to the satisfaction of the court. In this B matter if the plaintiffs (including 1st plaintiff) were in possession of the disputed land before NAFCO came on the scene they would be deemed to be entitled thereto.

In view of the above it appears that the law and procedure to be followed in acquiring land for public purposes is clear enough. It is also clear from the evidence of the defence witnesses that the law, C though clear, was not followed. However whether the provisions of the Land Acquisition Act can be applied to the facts of this case would depend on this court's decision on issue No. 1 and 2 as framed.

On issue No.1 PW.1 Frederick Tluway, the then Katibu Kata of Bassotu Ward, testified that from D may 1974 to September 1975 he was one of those involved in the establishment of village under "operation vijiji". Mulbadaw was one of the villages established. On the western side its boundary was Bassotu Plantations and Bassotu Lake. On the Eastern side its boundary was the Rift Valley E escarpment. On the Northern side it bordered on the Rift Valley and Ufana Ward in Bashnet. On the south side, the Laq'ang hill. According to this witness these boundaries followed the old boundaries of what was even then called Mulbadaw village. The land within the village was divided into areas for housing, farming areas for cultivation and pastures. According to the evidence of PW3 F Mohamed Guled Mulbadaw village was registered and incorporated under reference Reg. AR/KIJ/266 as per exhibits P.2 and P.3. There was also the evidence of PW.4 Jonas Samu on this issue that Mulbadaw developed into a fully fledged village with 'kayas' and a council. The G defendant has argued that as the village was not registered until 1976 it could not hold land in 1975. I accept the evidence of PW.1 Frederick Tluway. The effect of this evidence is that before the village was incorporated Mulbadaw village was an administrative unit. When it was incorporated it was in H possession and control of all land within the former administrative unit. It is inconceivable that a village was registered or incorporated without any land in its possession and control. Although the first issue was framed based on 'ownership' I find that once the village council the 1st plaintiff establishes lawful possession, it has established the preliminary requirement for a suit in trespass to I land. In view of this I do not consider it necessary to consider the defendant's argument that Mulbadaw village council had no formal right of occupancy

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over the land within the boundaries given by PW1. Frederick Tluway. I am satisfied that the village A council were in lawful possession and control of the land in question. The first issue is accordingly answered in the positive and in favour of the 1st plaintiff.

On issue No.2 relating to 2nd to 67th plaintiffs the following evidence is relevant. PW1 Frederick Tluway when he supervised "Operation vijiji" in Mulbadaw in 1975 found peasants already in B occupation of the area of Mulbadaw. He did not find NAFCO in the area which they set aside for Mulbadaw village which was later registered and incorporated. Of these he remembered the second and the 54th plaintiffs. We also have the evidence of PW.2 Welwel, PW 3 Mohamed Abdi, PW 4 C Jonas Sama, PW5 Habiye, PW6 Yusuf Ally and PW 7 Bangi Laida that they or other peasants were in occupation for a long time before NAFCO moved into the area. DW1 Sadic Omar Libembembe and DW7 MAO Mwingamba in their evidence also admitted that in 1978 when NAFCO moved into D Mulbadaw area they found peasants living in the area. However Exhibit P.6, minutes of a meeting held by Mulbadaw village on 6/1/81

contained a list of peasants whose crops were destroyed. The list gives the destroyed acreage of each peasant. According to PW3 Mohamed Guled on 6/1/81 the meeting elected a committee to deal with their problems. They visited the farm of each peasant E affected and recorded the damage done. Later in his evidence PW3 Mohamed Guled stated that the list was of 67 people who had their houses or crops destroyed. PW3 was not cross examined on the correctness or otherwise of this list. On the basis of the evidence of PW1 to 7, the admissions made F by DW.1 and DW7 and on the basis of Exhibit P.6 I find that the second to the 67th plaintiffs were in occupation of 1,839 acres of arable land in Mulbadaw village before NAFCO started operations in the area under the administrative jurisdiction of Mulbadaw village council. The village council G recognised that their occupation was lawful and they had been in occupation for a considerable time before NAFCO decided to expand. They had customary tenancies or what are called deemed rights of occupancy.

The defendant does not allege that it entered into vacant land. On the contrary it states that it H rightfully displaced the village council and the peasants after the land was 'identified' for its use - in other words the rights of the peasants and the village council were extinguished or gave way to the superior rights of NAFCO. The court finds the rights of the peasants and the village council could not be extinguished or superseded except by due operation of law. I

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D'SOUZA Ag J

A In view of the above issue No.2 is also answered in favour of the plaintiffs.

This court proposes to consider the evidence on issues 3, 4, 5, and 6 jointly as they overlap considerably. However the same can be considered in two parts. Firstly whether NAFCO unlawfully B entered into the land (found in issues No.1 and 2 to be owned by or at least in the lawful occupation of the plaintiffs). The second part is whether houses and crops were destroyed as alleged.

The Defendant contends that it entered the land lawfully with the blessings of government and C party leaders in Hanang District and Arusha Region. It is possible that the leaders concerned were acting in good faith but enthusiasm in implementing national projects should not encourage the taking of short cuts. The Mulbadaw village council and Mulbadaw villagers could only be deprived of their land by due operation of law. The Land Acquisition Act 47/67 provides the law on theD matter. The same Act also envisages situations where land is needed urgently and those in possession can be dispossessed at an enhanced speed. But as already held elsewhere in this judgment the provisions of this law were not followed.

E The Defendant also contends that the land it occupied was land in respect of which it held a valid right of occupancy. The Defendant produced three offers of rights of occupancy as exhibit D.10, D.11 and D.16. There are two reasons why this aspect of the Defendant's defence cannot stand. Firstly where someone is in lawful occupation of land no valid right of occupancy can be offered to F anyone else over the same land unless the provisions of the Land Acquisition Act 47/67 have been complied with. To hold otherwise would mean the Commissioner for Lands, by simple device of making offers of rights of occupancy could bypass the provisions of the law. In view of this I hold G that the right of occupancy offered to NAFCO in respect of Mulbadaw

wheat project was not valid. Secondly the offers as per Exhibits D.10 and D.11 were never formally accepted. The offer for Mulbadaw Wheat Project (Ex-D.16) was accepted in July 1981 and the requisite fees paid in August 1981. This was well after NAFCO had evicted the plaintiffs from the land. In other words when H NAFCO set out to expand into Mulbadaw they did not even have a right of occupancy over the area. For the above reasons this court finds that NAFCO's entry into the 8,125 acres in dispute in this case was illegal.

On the second aspect of these issues the Defendant has denied destroying 33 houses belonging to I 8th, 66th, 67th, 3rd, 4th, 5th, 10th, 11th, 14th, 15th, 16th, 17th, 19th, 22nd, 24th, 33rd, 35th,

36th, 43rd, 44th, 45th, 48th, 49th, 50th, 55th, 62nd, 41st, 46th, 54th, 57th, 58th, and 61st plaintiffs. The A defendant also denied destroying stored grain worth Shs. 4,800/- and 4281/2 acres of growing maize and beans. On the destroyed houses the defendant appears to state that the peasants voluntarily demolished them. On the stored grain the defendant denied any knowledge of the same. B On the destruction of crops the defendant admits that these were destroyed but states that this was not done by it. In paragraph 4 of the written statement of defence the defendant states that no trespass, blazing of houses and unlawful up rooting of crops had been committed by him (sic) at any point of time but all along since 1978 to present day the defendant has been carrying on a lawful C Tanzania national project.

Let us look at the evidence on this aspect. DW.3 Joseph Kamili was the officer in charge of the police station at Bassotu at all relevant times. He said that while holding that post he had never D received any complaints from peasants in Mulbadaw that NAFCO had burnt down or demolished their houses and destroyed their crops. In the same breath he stated that on 17.10.80 he was chosen as a member of sub-committee appointed by the Bassotu Ward Authorities to look into complaints E from peasants who said their houses had been burnt down. According to this witness when the subcommittee of six visited the areas they only saw some "bomas" or cattle enclosures burnt down. When cross-examined by Mr. Musei for the plaintiffs he said that he did receive complaints from the peasants that their houses were burnt down. He found some houses demolished by the peasants F themselves. D.N. 5 Amos Mwita was in the uncomfortable position of being the officer in charge of law and order in Hanang District at the relevant time. He said he did not personally receive any complaints from the peasants that their crops and houses had been demolished or destroyed - he G received these from the "O.C.S." Bassotu and the Area Commissioner of Hanang District. He received this news by radio call on 8.12.80. He made an investigation and wrote a report (Exhibit D.19) to the Area Commissioner. The relevant part of the report reads: H

> Mnamo tarehe 29/12/80 Mkuu wa Polisi Wilaya ya Hanang alifuatana na baadhi ya walalamikaji walifika sehemu ya mahame yaliyosemwa kuchomwa. Hakuona dalili ya nyumba au mazao kuchomwa ila kulikuwa na masalia ya majivu ya magogo yaliyong'olewa na kuchomwa. Kulikuwa na udongo I

A uliosukumwa na kurudishwa pamoja kwa kitu kama mashine. Walalamikaji .. walishindwa kuonyesha masalia.

On cross-examination he said he saw the remains of some small maize plants that had been ploughed B over. DW.7 MAO Mwangamba, the manager at Mulbadaw at the relevant time also gave similar evidence - that only cattle enclosures or fences surrounding houses had been burnt and that houses had been moved by the peasants themselves. However to the script. He stated that from 3rd to 5th C January 1981 the Katibu Kata, the Mratibu Kata and the police from Bassotu came to Mulbadaw to ask for agricultural equipment to assist in moving out the peasants - tractors and plough. On these three days "the job" was, he said, done. In cross-examination he said that he gave them four tractors driven by the drivers working for NAFCO - Mulbadaw and under his directions. He was D around on the first day of the "operation" and then left for Arusha. DW.10 Charles Kapera the 'O.C.S.' Bassotu in 1979, 1980 and 1981 also gave similar evidence. DW.9 Sebastian Gidamashghu, the Katibu Kata of Bassotu was also one of the people involved in the exercise of removing E peasants from the area. On the side of the plaintiffs on these issues we have the evidence of PW2 Welwel Amsi, PW 3 Mohamed Guled, PW 6 Yusufu Ali, and PW 7 Bangi Laida. Welwel Amsi described the progressive expansion of the Mulbadaw project over 3 years and its effect on the plaintiffs. So did PW.3 Mohamed Guled, PW6 Yusuf Ali and PW7 Bangi Laid. In weighing the F relative credibility of these witnesses on these issues I have taken into account that they must be quite bitter about losing their land, houses, and livelihood. However, I have, with this in mind observed that demeanour and reaction to cross-examination and I find them to be truthful witnesses. G I find that the evidence of DW.3 Joseph Kamili, DW.5 amos Mwita, DW.7 Charles Kapera, all of whom were involved in various stages of removing the peasants, their houses and crops from the disputed land, to be unreliable and self-serving. Aside from these opinions of this court on credibility I find that there are circumstances lending support to the plaintiffs' case. DW.1 Said Omar H Libembembe and DW.7 MAO Mwengamba accepted that there were peasants living in the area before NAFCO moved in. They presumably lived in houses. By the time the suit was filed these houses were no longer there. The Defendant contends that the peasants voluntarily removed them. I In view of the long history of resistance on the part of the peasants I find such voluntary demolition impossible to believe. PW3 Mohamed Guled produced as Exhibits P.6 and P.7 a list

compiled by the plaintiffs of the people whose crops were ploughed over and whose houses were A demolished. No cross-examination was led on these exhibits. In view of the above, and considering the evidence as a whole, I find it proved to the extent required in Civil Cases, or even more, that the plaintiffs' growing crops, stored crops and houses were destroyed by the defendant. B

The defendant's counsel urges in his submission that the mischief if any, was done by the officers of the administration and the police. From the beginning this has been a conflict between NAFCO and the plaintiffs. The part played by the administration and police has been at the request and instigation of NAFCO. NAFCO does not deny entering into the land

immediately the village and C villagers were ousted. They do not also deny providing active assistance and equipment in the last stages of the operations. In view of the above I find no merit in the defendant's contention that it was a mere on-looker. D

In the final event issues 1 to 6 are answered in favour of the plaintiffs.

In this suit the plaintiffs pray for judgment to be entered against the defendant as follows:

(a) A declaration that the land belongs to the Plaintiffs and an order that the defendant cease E their trespass forthwith.

(b) Special damages in the sum of Shs 545,600/=

(c) General damages for trespass F

(d) Interest

(e) Costs

(f) Any other relief

In view of the findings on the issue in this case prayer (a) is granted as prayed. On the special G damages claimed PW.3 Mohamed Guled testified that 378 acres of growing maize and 501/2 acres of growing beans were ploughed over. He gave the production of maize in the area at 81/2 bags to 15 bags per acre at Shs. 130/- per bag- making a total of Shs. 467,777/- for loss of the maize crop. Fifty H and halfacres of beans were destroyed. According to PW.3 each acre would have produced 4 bags at 275/- a bag making Shs. 56,525/- in lost beans crop. The 33 destroyed houses were valued at Shs 500/- each - making a total of Shs 16,500/-. PW.3 also testified that Safari Sito had 18 bags of maize I burnt and Bangi Laida had 10 bags of maize and 7 bags of beans burnt. As the maize was from the

A previous year's crop PW.3 put it at Shs. 100/- a bag. The figure for the burnt crops was Shs 4,800/=.

The defendant did not challenge these figures either in cross-examination of the plaintiff's witnesses or through its own witnesses. The figures appear reasonable and I accept them. In the event the B claim for special damages is allowed as prayed at Shs 545,600/-.

In considering the claim for general damages this court considers the following factors:

(a) The plaintiffs have been deprived of the use of their land partially from March 1979 and C totally from January 1981 until to-date. Excluding the 1980/81 crop which has been covered by the award of special damages, the plaintiffs have lost crops for three years.

(b) On only 4281/2 acres of land the plaintiffs were capable of producing over Shs 500,000/- D worth of crops per annum. The total land they were deprived of using was 6,095 acres of pasture and 2030 acres of arable land.

On the other hand I consider that the plaintiffs during their period of deprivation did not have to use any inputs in the form of seed, fertilizer, labour, fuel etc.

E Considering that the 1st plaintiff had only 200 acres of land under cultivation and that the exact use to which the pasture was put was not established, I award the 1st plaintiff Shs. 250,000/- as general damages. The 3rd to the 67th plaintiffs, who owned and used 1830 acres of land are awarded F shs. 1,300,000/- in general damages - the same to be apportioned between

them in proportion to the acreage held by each before their eviction by NAFCO. The special and general damages awarded, totalling shs. 1,095,600/- is to bear interest at 9% from the date of judgment until payment in full.

G The plaintiffs are also awarded the costs of this suit, the same to be taxed.

Delivered this 3/12/84 in the presence of Mr. Musei for the plaintiffs and Ndugu H.A. Mapezi of H NAFCO Zonal Office, Arusha for the defendant.

Order Accordingly.

A

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v ELIATOSHA MOSHA AND ANOTHER 1984 TLR 28 (CA)

Court Court of Appeal of Tanzania - Mwanza

Judge Nyalali CJ, Mustafa JJA and Kisanga JJA

November 28, 1984

CRIMINAL APPEAL 24 OF 1983 B

Labour Law - Employment Ordinance - Complainant driving and keeping respondent's taxi and retaining 20% of earnings - Whether relationship of Employer and employee existed to attract prosecution for breaches of the Employment Ordinance. C

-Headnote

This is a second appeal by the Director of Public Prosecutions and it concerns a case in which the respondents were charged in the District Court at Mwanza for breaches of certain provisions of the Employment Ordinance, Cap. 366, and the Regulation of Wages and Terms of Employment D Ordinance, Cap. 300 and the Workmen's Compensation Ordinance, Cap. 263. Detailed facts appear in the judgment.

Held: To enable the court to decide satisfactorily whether, on the facts, there existed in law a E relationship of employer and employee it was necessary to adduce evidence to show the degree of control that the respondents had over the driver and the motor vehicle, responsibility for maintenance of the taxi and how the earnings were determined or controlled. F

Case Information

Appeal dismissed.

Case referred to:

1. Market Investigations Ltd. v Minister for Social Security [1969] 2 W.L.R. 1. G

Mtaki for the appellant

Rugarabamu for the respondent H

[zJDz]Judgment

Nyalali, C.J.: This is a second appeal by the Director of Public Prosecutions and it concerns a case in which the two respondents namely, Eliatosha Mosha and Denis Mrema were charged in the District Court at Mwanza on four counts, that is: I

NYALALI CJ

A (1) Failure to prepare and maintain a contract of service - contrary to section 35(1) (2) and (3) of the Employment Ordinance - Cap. 336 - in the first count;

(2) Failure to keep a record of wages - contrary to section 17(1) of the Regulation of Wages and Terms of B Employment Ordinance - Cap. 300 - in the second count;

(3) Failure to insure themselves in respect of liability to their employees - contrary to section 25(1) and (2) of the Workmen's Compensation Ordinance - Cap. 263; and

C (4) Failure to pay statutory minimum wages - contrary to section 12 of the Regulation of Wages and Terms of Employment Ordinance - Cap. 300.

They were acquitted on all counts at the trial. The Director of Public Prosecutions was aggrieved by that decision and appealed to the High Court. The appeal was dismissed in its entirety, hence this D appeal to this Court.

It was found by the two courts below that the respondents owned a number of motor vehicles which were used in taxi business in Mwanza township; that one Mwinyasumba Mrema (P.W.1) was one of E the drivers of these taxis for a period of seven years. He used to keep the taxi at his home and he was paid a 20% commission on the taxi earnings. The remainder of the earnings was taken by the respondents. In August 1980 P.W.1 ceased to drive any of the respondents' vehicles apparently as a result of some misunderstandings.

F It is the prosecution case that P.W. 1 was employed by the respondents throughout the period and was therefore covered by the relevant provisions of the Employment Ordinance, the Workmen's Compensation Ordinance, and the Regulation of Wages and Terms of Employment Ordinance, which G were the subject of the charges at the trial. The respondents denied that there existed a relationship of employer and employee between them and P.W. 1 and that the latter operated as an independent contractor under a special business arrangement between him and the respondents.

H The crucial point, as correctly realised by both the two courts below, is whether there was a relationship of employer and employee between the respondents and P.W.1. Unfortunately, as noted by the first appellate judge, the prosecution was poorly handled at the trial with the result that there was a failure to adduce crucial evidence which would have enabled the court to decide the main I issue satisfactorily. Mr. Mtaki, learned State Attorney who appeared on behalf of the Director of Public Prosecutions, conceded that there

was such mishandling of the prosecution case. For instance, no evidence was adduced to show the A degree of control that the respondents had over the motor vehicle or P.W.1; similarly, no evidence was adduced concerning which party was responsible for the maintenance of the taxi; no attempt was made to lead evidence on how the earnings were determined or controlled. Such and like B evidence was necessary to enable the court to decide satisfactorily whether on the facts, there existed in law a relationship of employer and employee.

Mr. Mtaki, learned State Attorney, and Mr. Rugarabamu learned advocate who appeared for the respondents, have cited an authority concerning the relationship which in law amounts to the C

relationship of employer and employee. This is the case of Market Investigations Ltd. v Minister of Social Security [1969] 2 W.L.R.I.

This case stipulates a number of factors which ought to be considered in deciding whether a D relationship of employer and employee exists in any particular case. Such factors are suggested as:

1. Control;
2. Ownership of the tools; E
3. Chance of profit; and
4. Risk of loss.

However, we are of the opinion that the present case is so poorly prosecuted that it lacks a number of important facts which are necessary for a conclusive statement by this Court of the relevant F general principles. In any case, only one of the factors stated in the Market Investigations case, that is, the factor of ownership of the tools, can be said to have been proved in the present case. It is common ground that the motor vehicle which was driven by P.W. 1 belonged to the respondents. But that factor alone does not make P.W. 1 an employee of the respondents, since the motor vehicle G could have been hired out to P.W.1 by the respondents. On the facts found by the two courts below, it cannot be said that P.W.1 was an employee of the respondents. The two courts below were correct in acquitting the respondents and in dismissing the first appeal. H

It follows that this appeal cannot succeed and we dismiss it in its entirety. I

Appeal dismissed

1984 TLR p31

A

[zRPz]SALUM JUMA MZERU v OMARI UBAYA 1984 TLR 31 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Bahati J

February 21, 1985

B CIVIL APPEAL 6 of 1984

Flynote

Land Law - Compensation - Compensation for improvements made on another person's plot - Whether the one who made improvements is entitled to compensation.

-Headnote

C The respondent built on the plot of land belonging to the appellant. The respondent was asking for compensation because he did not know that the plot on which he was building had an owner and that he had his letter of offer for the same plot. He said that since he had spent money on the plot D and since he was not to blame for the mistake of giving him an offer for that plot, he was entitled to compensation. The appellant on the other hand argued that the respondent was not entitled to any compensation because he was building on another person's

land without even a building permit and had to be stopped from doing so by arresting his workmen on the plot.

E Held:(i) There was no reason for compensation since it was not equitable to force the appellant to take the building he did not want;

F (ii) since the respondent had developed land and since there was no compensation, the respondent could demolish his building and carry away his building materials.

Case Information

Appeal allowed.

G Cases referred to:

1. Conway v Whimpy [1951] 2 KB 266

2. Anna Benedict v Mrisho (East African Court of Appeal, No. 41 of 1976 unreported).

H 3. Christopher Nyirabu v M.P. Nyagwaswa (High Court, Dar es Salaam Civil Case No. 61 of 1981 unreported).

A. Omari for the appellant

[zJDz]Judgment

Bahati, J.: The issue in this appeal is whether the respondent should be compensated for the I building he constructed on the plot of land belonging to the appellant. The

1984 TLR p32

BAHATI J

appellant has argued that the respondent is not entitled to any compensation because the A respondent was building on another person's land without even a building permit and he had to be stopped from doing so by arresting his workmen on the plot. Mr. Omari learned counsel for the appellant cited the cases of Conway v Whimpy [1951] 2 KB 266 and Civil Appeal No. 41 of 1976 Anna B Benedict v Mrisho which is a court of Appeal Case. He also cited my recent decision in the case of Christopher Nyirabu v M.P. Nyagwaswa which is Civil Case No. 61 of 1980 in support of his argument. He concluded by submitting that even the respondent did not ask for any compensation for his building and as such it was wrong for the learned Magistrate to order such compensation. C

In reply, the respondent said that he was asking for compensation because he did not know that the plot on which he was building had an owner and that he had his letter of offer for the same plot. Since he had spent money on that plot and since he was not to blame for the mistake of giving him D an offer for that plot, he was entitled to compensation.

In a short reply Mr. Omari submitted that the respondent had filed a written reply to the appellant's memorandum of appeal. In that written reply the respondent was saying that he knew that the land in E question was of someone else and that he made the constructions amidst objections by the appellant. Mr. Omari asked the order for compensation to be set aside.

This appeal can be disposed of on the authority of Civil Appeal No. 41 of 1976 Anna Benedict v Mrisho. In that case a committee purported to allocate the plot already allocated to the appellant F (Anna) to the respondent (Mrisho). After allocation Mrisho began constructing a building on the plot. Anna saw this and filed a suit in the Resident Magistrate Court claiming ownership of

the land in question. The resident Magistrate's court held that the land belonged to Anna and that Mrisho G should vacate it. But the Resident Magistrate's Court ordered that Anna should pay compensation to Mrisho for the improvement he had put on the land. It should be remembered that Mrisho went on to build on the land even after he had got notice that the land was in dispute. On a final appeal to the H Court of Appeal for East Africa the Court agreed with the High Court that a party should not reap the benefits of the improvements to the land effected by the opposing party without paying for such benefit and compensating the opposite party for this expenditure in so improving the value of land. But this principle of "unjust enrichment", as the court put it, did not apply in that case because I

1984 TLR p33

A the court did not find it equitable to force Anna take up a building which she might not have wanted to build in such a fashion since she might want to build a less expensive building altogether. The Court found that the most reasonable thing to do was to order Mrisho to demolish his building B and take away all his material within a certain period. Failing to do so within that period all the material on the land would become the property of Anna.

I notice that the learned trial Magistrate in our present case referred to the case of Anna Benedict v Sefu Mrisho but unfortunately he was not aware that there was a court of Appeal decision in that C case which set aside the order of compensation as I have shown above. Our present case is on all fours with Anna Benedict's case. Like the Court of Appel in Anna Benedict's case, I do not see any D reason for compensation. The respondent should demolish his building. I therefore allow this appeal. I order that the respondent demolish his building and carry away his building materials within two months from the date of this judgment. If by that date the respondent has not done so then the materials on the plot will become the property of the appellant. It is so ordered. This appeal E is therefore allowed with costs.

Appeal allowed.

1984 TLR p33

F

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v JACKSON MARO KINYIHA AND TWO OTHERS 1984 TLR 33 (HC)

Court High Court of Tanzania - Mwanza
Judge Munyera J

August 14, 1984

G (PC) CRIMINAL APPEAL 15 OF 1984

Flynote

Criminal Practice and Procedure - Trial before Primary Court - Under s.41(2) of the Magistrates' Courts Act accused has to be asked before making any plea if he is satisfied that his trial should be conducted in the H Primary Court. In this case the accused were asked after they had made their pleas - Whether this occasioned a failure of justice.

-Headnote

Three respondents were charged jointly and with another before a Primary Court with robbery. It I was alleged that the respondents together with others attacked the complainant and his companion and drove away all his cattle. The trial court unanimously convicted

1984 TLR p34

MUNYERA J

them and sentenced the three respondents to seven years' imprisonment each; the fourth was found A to be under age and was discharged absolutely. They appealed to the District Court which quashed their conviction and acquitted them. The Republic appealed against the order of acquittal in relation to the three respondents.

Held: (i) Non compliance with the provisions of s.41(2) of the Magistrates' Courts Act was not fatal B for the case could still be transferred to the District Court notwithstanding that pleas had already been taken;

(ii) there was ample evidence to show that the respondents committed the offence of robbery C as charged.

Case Information

Appeal allowed.

No case referred to. D

[zJDz]Judgment

Munyera, J.: The three respondents were charged jointly and with another (4th accused) before Kenyana Primary Court. They were charged with robbery. It was prosecution's case that on 27/9/82 the complainant (PW.1) was driving a herd of 51 heads of cattle from Kenyana to Buchanchari E Village. He was sending them to his brother for safe custody. He was being helped by one Machota Nyisaba (P.W.2). When they arrived at a place called Nyantare a group of about 8 people was sighted. They were armed with bows and arrows and one of them had a rifle. They attacked the F complainant and his companion (PW.2). The latter ran into a creek for safety. The gang drove all the cattle away, which were never recovered. The robbery took place near Buchanchari Village where the complainant intended to send his cattle. He reported the matter to the village chairman naming the three respondents and the 4th accused as among the gangsters. They were arrested and charged as G stated above. All of them denied that they robbed the complainant. The trial court unanimously convicted them and sentenced the three respondents to seven (7) years' imprisonment each. The 4th accused was found to be under age and was discharged absolutely. All were ordered to pay 51 head H of cattle to the complainant as compensation. They appealed to the District Court and won. The District Magistrate quashed the conviction and acquitted all of them. The Republic appealed against the order of acquittal in relation to the three appellants. The learned counsel for the appellant argued that the prosecution has amply proved the charge and the District Magistrate's order of acquittal I was unjustified.

1984 TLR p35

MUNYERA J

A In reading the record I discovered that the learned District Magistrate had two grounds for reversing the judgment of the trial court; one of law and the other of facts. With regard to the point of law it was submitted by the respondent's advocate (at the first appeal) that the provisions of B Section 41(2) of the Magistrates' Court Act were not complied with because the respondents were asked whether they were content to have their case tried before the Primary Court and this was done after their pleas were taken. The counsel argued that the irregularity was fatal and prayed for a retrial C or if that was uncalled for, an acquittal. It is true the record of the trial court shows that the respondents first appeared before the court on 26/10/82 and were called upon to plead. The case was adjourned till 17/11/82. On that day the trial magistrate wrote "Nimewakumbusha shtaka lao na bado wanakana." Then he wrote "fungu 41(2) (b) MCA limetekelezwa, washtakiwa wanakubali D kesi isikilizwe na mahakama ya mwanzo". Obviously the section was complied with after the pleas had been taken and this offended the provisions of the same section which require that the election be made before pleas were taken. But I do not see what harm the error had caused. If the E respondents so elected the case could still be transferred to the District Court notwithstanding the plea had already been taken. The error did not occasion a failure of justice and was curable under section 32(2) of the M.C.A.

I now turn to the question of facts. There was evidence of the complainant (PW.1) and his aider F (PW.2) that they were attacked by a gang and they recognised the three respondents (and the 4th accused) whom they said they knew very well. The robbery took place at about 4 p.m. so the conditions were favourable. The learned District Magistrate called PW1 and PW 2 liars. I do not G know what lies they had told. The complainant had produced a letter dated 26/9/82 which the Katibu Kata had written authorising him to move 51 head of cattle from Kenyana na Buchanchari. These cattle never reached Buchanchari. Were the complainant and his companion (PW2) telling lies when they said the cattle were stolen on the way? Definitely the answer is No. The cattle were stolen. If H the District Magistrate thought the complainant and his companion cooked up the story against the respondents then there was evidence of an independent witness, Mwiso Matoto (PW4). This witness put the story very clearly. He said on that day cattle belonging to one Kentunguye were I stolen from Buchanchari in grazing. The alarm was raised and he and the respondents joined other people to trace the stolen cattle. They did not find them. On returning they met two

people driving a herd of cattle towards Buchanchari. The alarm men thought those two men were A thieves but on approaching them they ascertained that they were innocent people. Despite all contrary advice, the three respondents (and others) attacked those two men and took away the cattle. Although the witness did not say who those two men were, clearly it was the complainant and B his companion. The witness (PW.4) estimates the herd at 50 head or over. The learned District Magistrate branded this witness a liar as well. Again there was evidence of Robert Nyamhanga (PW.3) to the effect that on the material day Ketunguye's cattle were stolen and the three respondents were among the people who responded to the alarm. In the evening these three C respondents and others returned with many cattle but not the ones stolen from

Katunguye. They drove those cattle towards a place called Nyamihuru and the cattle vanished. If Ketunguye's cattle which the respondents were tracking had not been recovered, where did they get the cattle they came with? All this proved that the complainant had been robbed of his cattle and the robbers were D the three respondents and others not identified. They were rightly convicted and the sentence of seven (7) years was the minimum prescribed. The order of compensation was mandatory. The appeal is allowed. I set aside the District Magistrate's order of acquittal and restore the conviction recorded E by the trial court and the sentence imposed. The order of compensation is also restored.

The records of the lower courts to be remitted back. The three respondents to be arrested and sent back to prison concerned to serve the remaining sentence. F

Appeal allowed. G

1984 TLR p37

A

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v ABDI NYENYE 1984 TLR 37 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

October 10, 1985

B CRIMINAL APPEAL 4 of 1984

Flynote

Criminal Law - Careless driving - Driver fails to exercise control over a motor vehicle thereby swerving left and right and consequently sustaining frontal damage - Whether he is guilty of careless driving c/ss. 63(2)(d) C and 27 (1)(b) of the Road Traffic Act, 1973.

-Headnote

The respondent was a driver with Dodoma Wine Company. It was alleged that one day he took his employer's vehicle which suddenly swerved off the road, smashed into a thicket and sustained D substantial frontal damage. The respondent was charged with two counts, taking a motor vehicle without the owner's consent and with careless driving. The District Court acquitted him on both counts. The Director of Public Prosecutions appealed against the acquittal on the second count.

E Held: (i) The vehicle could not just swerve to the right and left, there must have been a reason for that development otherwise it amounted to careless driving;

E (ii) there was no evidence to show that the steering system suddenly broke or gave way.

Case Information

Appeal allowed.

Case referred to:

G 1. Patel v R [1968] E.A. 97.

Senguji for the appellant.

[zJDz]Judgment

H Lugakingira, J.: This was an appeal by the Director of Public Prosecutions from the decision of the District Court of Dodoma in a traffic charge.

The respondent Abdi Nyenye, was a driver with the Dodoma Wine Company in Dodoma. On 18.6.83 I he was driving his employer's motor vehicle Reg. No. SU 13037 when, about ten miles from town, the vehicle suddenly swerved off the road, smashed into a thicket and sustained substantial frontal damage. He was charged under the

1984 TLR p38

LUGAKINGIRA J

Road Traffic Act, 1973 with taking a motor vehicle without the owner's consent c/s. 62(1) and with A careless driving c/ss.50, 63(2) (d) and 27(1)(b). He was acquitted on both counts. This appeal was against the acquittal on the second count.

To appreciate the findings of the trial court magistrate and the arguments canvassed on behalf of the DPP before me, it is desirable to set out the particulars of the charge in the second count. So far as is B relevant here the particulars alleged that the respondent

did drive the said motor vehicle on the said road carelessly or without reasonable consideration for other persons using the road, to wit, he failed to control the said motor vehicle on the said road as the result he C drove extremely to the left side and overturned thereby causing damage to the said motor vehicle.

In acquitting the respondent the learned trial magistrate held that neither the charge nor the D evidence disclosed careless driving. He was prepared to believe the respondent that the vehicle went off the road because the steering system suddenly broke. Mr. Senguji who appeared for the DPP argued that the trial magistrate erred in finding as he did. He submitted that the charge E disclosed the offences as it alleged specifically that the respondent failed to control the vehicle. He also referred to the evidence on speed, which was adjudged high, and to the further evidence that before the accident the vehicle had one defect, namely, a worn out rear tyre. The respondent reiterated before me that the steering suddenly broke. He maintained that he was otherwise driving F in a normal and reasonable manner.

After studying the charge and weighting the evidence, I think there is force in Mr. Senguji's argument. What the charge was expected to disclose is an act or omission from which careless driving could be inferred. The trial magistrate was apparently aware of this for he said: G

It is essential that the charge sheet states the act of omission complained of, that is, what constitutes the careless driving manner ... it is wrong if I agree that because an accident has occurred the driver must have H been driving carelessly.

This is all correct, and the question is whether in this case the charge did not allege an act or omission which was consistent with careless driving. I find, with respect, that the charge was not I wanting as found by the learned magistrate. It alleged that the respondent "failed

1984 TLR p39

LUGAKINGIRA J

A to control the said motor vehicle." In other words, to put it in the simplest terms, the respondent let the vehicle drive itself, as it were. That was an omission; and when a person drives in such a manner as to permit the vehicle freely to make dangerous swerves, I apprehend

that that is a piece of B careless driving. I am therefore unable to agree with the trial magistrate that the charge did not disclose the offence.

What is more, I think there was evidence from which careless driving could be inferred. I do not propose to say anything about alleged speeding for that was an opinion which the evidence does C not clearly demonstrate. However, there was a sketch plan, Exhibit C, which shows that the vehicle suddenly swerved to the right and then to the left to end up in a thicket. The sketch plan and what it shows were not disputed by the respondent. But vehicles do not decide suddenly to swerve this way or that. There must be some reason for that sort of behaviour, and in the absence of a plausible D explanation the only reasonable inference is that the driver was driving carelessly. This is not the same thing as judging issues from the mere fact of the accident. We are here presented with a stated omission, namely, failure to exercise control over the vehicle, and the explanation which would be E expected is whether the behaviour of the vehicle was for reasons beyond the driver's control.

In these remarks I am fortified by the observations of the Court of Appeal in Patel v R. [1968] E.A. 97. In that case the appellant was charged with driving in a manner dangerous to the public c/s 47(1) F of the Kenya Traffic Act. He had been driving in a cautious and orderly manner on a wet road when, suddenly, his car skidded to the right and collided with a car which was being driven in the opposite direction. At the close of the prosecution case the trial magistrate ruled that the appellant had no case to answer. The State appealed to the High Court which reversed that decision and the G appellant appealed to the Court of Appeal. The Court upheld the decision of the High Court and said, inter alia;

> Now before the accident, as we have already said, the road was wet and the car was being driven in a H normal way at a reasonable speed; and then it suddenly skidded or swerved across the road in front of an oncoming vehicle. It is well-known that cars, even on a wet road, do not skid or swerve without reason. It is also well-known that for no reason at all cars do not turn into an oncoming vehicle. Unless an explanation is I given which shows that for all practical purposes the driver of the car was not, for reasons beyond his control,

> in control of it, turning immediately infront of an oncoming vehicle is, on the face of it, a patently A dangerous manoeuvre.

That case was concerned with dangerous driving but the principles elucidated therein are not inapplicable to careless driving.

As I have said, the respondent's vehicle could not just swerve to the right and left. There must have B been a reason for that development, otherwise it amounted to careless driving. The prosecution alleged that the vehicle swerved because the respondent was exercising no control over it. I think, with respect, that case had been made out and the onus was cast on the respondent to account for C the swerve by an explanation which could show that it all happened for reasons beyond his control. I am thus of the view, unlike the trial magistrate, that the evidence equally disclosed the offence.

The respondent's explanation was that the steering system suddenly broke or gave way. If that D could be established it could afford a good defence to the charge. It would show that the respondent lost control of the vehicle for reasons beyond his control. But was the explanation true? There was evidence from Inspector James Kombo that the only defect before the accident was a E worn out rear tyre. He also tendered his inspection report, Exhibit B, which testified to the same state. The report does not speak of a broken steering system either before or after the accident, but in Item 10 thereof it speaks only of steering arms being bent after the accident. The respondent never challenged that evidence except as to whether Inspector Kombo went to the scene of F accident, which was irrelevant. In stating that the steering might have broken the trial magistrate never made reference to the evidence of Inspector Kombo and it is doubtful that he would have found as he did if he had done so. There was therefore no explanation for the swerve the vehicle G made and the only inference is that the respondent was not exercising proper control, which amounted to careless driving.

It follows that the appeal succeeds and I allow it accordingly. I set aside the respondent's acquittal on the second count and substitute a conviction. H

The respondent is to be summoned before the trial court for sentencing and consequential orders in accordance with the law.

Appeal allowed. I

1984 TLR p41

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[zRPz]AMINA BAKARI v RAMADHANI RAJABU 1984 TLR 41 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

January 14, 1986

B CIVIL APPEAL 17 OF 1984

Flynote

Family Law - Custody of children - Claim for custody of child born after parties were formally divorced.

Family Law - "Children born in wedlock" - Meaning of - Rule 175 of the Customary Law Declaration Order - C Whether Adulterer's claim can be sustained.

-Headnote

This was a suit for the custody of a child who was born after his parents were formally divorced. The appellant claimed that the child was sired by a person other than her former husband. The trial court D refused to grant the respondent's claim for the reason that the appellant had named another person as the father of the child. On appeal the District Court reversed the decision and hence the present appeal.

E Held: Whatever be the correct English expression of "children born in wedlock belong to the father", it provides no justification for denying the spirit of the customary rule from which Rule

175 derives, namely, the preservation of the sanctity and dignity of the marriage institution by refusing F to recognise adultery, a trespass to the marriage, as taking precedence over and ousting the husband's rights.

Case Information

Order accordingly.

G Cases referred to:

1. Richard Mapesa v Rashid Bwana [1978] LRT n.4.
2. Mungasio Munchari v Moseti Meremo [1978] LRT n.6.
3. Masuka v Sigonjwe [1971] H.C.D. n. 92.
4. H Mgowa Madolo v Mgogolo Dododo [1973] LRT n.7.

[zJDz]Judgment

Lugakingira, J.: This was a suit for custody of a child but it had rather unusual features. The parties were married in the early 1970s. They separated in August 1978 according to the respondent. I On 30/12/78 they were formally divorced before the Primary Court at Merya. According to the respondent again, the appellant was then over eight months' pregnant and gave birth to a

male-child on 5/1/79 which was given the name Juma. He sued for custody of the child in 1983 in A order to provide it with proper maintenance. He tendered the child's birth certificate which was issued at Singida on 24/3/79.

The appellant resisted the claim. She alleged that she had been separated from the respondent for three years before she petitioned for divorce. She denied being pregnant at the time of the divorce. B According to her, she got married to one Iddi Tenga in January 1979, got pregnant, and gave birth to a male child on 20/10/79 which was given the name Juma. She tendered clinic attendance cards to evidence the pregnancy and birth. According to her, therefore, the child's father is Iddi Tenga who C in fact gave evidence claiming paternity.

The trial court doubted the respondent's story including his tendering of a certificate. It therefore held that Juma was born on 20/10/79 and was not the respondent's child. The court also purported D to rely on Rule 183 of the Declaration of Customary Law, G.N. No. 279 of 1963, which provides that a man may not deny paternity of a child if named by a woman unless he can prove that he had no sexual relations with her. It interpreted this to mean that even a husband may not claim paternity of a E child if another man has been named by the woman. The decision was reversed by the District Court which took a different view of the evidence and declared the respondent to be Juma's father although it did not grant him custody.

I have said that the case was unusual. Never before have I heard one and the same child being born twice and with documentary evidence on each alleged birth. It simply means that one of the parties F was untruthful, for it is not in the nature of things to permit such a miracle. An added difficulty which greatly exercised the courts below is that the parties were remarkably inconsistent and unreliable where dates were concerned. Even the date of their marriage remained unsettled. In the G divorce certificate Exhibit A - it is not clear by whom or when it

was tendered -this date is given as 1972. In the appellant's evidence it is given as 1973 while in the respondent's evidence it is 1974. The respondent was not consistent even on the date of separation. It is either February or March or H August 1978. He was only consistent that the appellant was already pregnant at the time. The same is true of the appellant. At first she stated that she did not know how long the separation lasted before she petitioned for divorce but later said it lasted three years. Her conception of time and her familiarity with the calender must be much doubted as she told the District Court that I divorce was granted in 1983. With

LUGAKINGIRA J

A such evidence and such witnesses the task of any court must be difficult indeed.

One thing is certain, namely, that the parties were divorced on 30/12/78 according to the divorce certificate Exhibit A. The greatest difficulty is to resolve the time of the conception and birth of the B child Juma. Faced with this difficulty, the District Magistrate on first appeal wisely called for and pursued the divorce proceeding in Matrimonial cause No 34 of 1978. He discovered that on 1.12.78 the appellant admitted being pregnant and the argument then centred on the age of the pregnancy. I C have no reason to doubt the learned District Magistrate on the discovery of this admission which he cites several times in his judgment. Now, where did that pregnancy go? The appellant offers no explanation but to deny any knowledge of it.This, I am afraid, is not a little dishonest. Apart from appellant's earlier admission, I note that in the divorce certificate exhibit A., which was taken out on D 2/9/80, a child, Juma Ramadhani, is inserted as a child of the marriage. There is then the birth certificate Exhibit B. It is perfect in every respect and shows that one Juma Kidimwa Ramadhani was born to the parties on 5/1/79. Kidimwa is another of the respondent's names. In law, a birth E certificate is presumed to be genuine, it being a certified copy of an entry in the births register - see s.88 of the Evidence Act, 1967. The burden of rebutting that presumption was in this case on the appellant. In my respectful view it was not rebutted by the production of clinic-cards, Exhibit C., F which have no legal standing and which are altered in not less than twenty places. It required more and better evidence than the apparently conspiratorial stories of the appellant and her present husband. I am therefore in agreement with the learned District Magistrate that Juma was conceived during the subsistence of the marriage and was born on 5/1/79 shortly after its dissolution.

G It is of course uncertain whether the respondent is Juma's natural parent given the uncertainty of the date of separation and the unreliability of the parties generally. The matter, however, is governed by customary law and the courts below proceeded on that footing. It may be mentioned that in H Singida district it is not uncommon to find people with names that have no bearing to their religious persuasions, if any. And even where names indicate any religion, customary law still plays a predominant role. It was therefore not suggested in this case that the parties' matrimonial I relationship was anything but customary. In accordance with Rule 175 of the Declaration already referred to children born to a married couple belong to the husband and this has been interpreted to include children

LUGAKINGIRA J
conceived during the subsistence of the marriage but born after its dissolution. Under this rule it is A immaterial that a child is sired adulterously. It belongs to the husband so long as he accepts it. On the facts of this case, it follows that Juma is the respondent's son regardless of how he was conceived.
There have been interesting propositions about a child born to a married couple or "born in B wedlock" and this judgment would be incomplete without reference to them. I am having in mind what was said in Richard Mapesa v Rashid Bwana [1978] LRT n.4 and Mungasio Munchari v Moseti Meremo [1978] LRT. n.6. These decisions propound the view that Rule 175 applies to a child C "born to married parents" or a child which is a "natural product of the physical union between husband and wife". Under this view a child born adulterously does not fall under Rule 175. I have a great deal of respect for my learned brothers who took that view but I think it is an ingenious interpretation which does not find justification in the customary law of which Rule 175 is a mere D declaration. The problem could possibly stem from the proliferation of terms and expressions. We have the original "watoto wanaozaliwa na watu walioona"; we then have "children born to married parents", "children born during the subsistence of a marriage" "children born in wedlock", etc.; but E whatever be the correct English expression it provided no justification for denying the spirit of the customary rule from which Rule 175 derives. This is the preservation of the sanctity and dignity of the marriage institutions by refusing to recognise adultery, a trespass to the marriage, as taking precedence over and ousting the husband's rights. It is thus possible to identify two fundamentals F in the rule. First of all, the contract of marriage confers certain rights on the husband, including the right to children born during the subsistence of the marriage, and this is secured by the payment of bridewealth. Secondly, customary law, like any civilised law, recognises no rights founded in G transgression. It is therefore open neither to the wife nor to her lover to deny the husband's paternity to a child born during the subsistence of the marriage.
These arguments are by no means new. In Masuka v Sigonjwe [1971] H.C.D. n.92 the adulterer filed a case against the husband claiming custody of a child born of the wife, of which the adulterer H claimed to be the father. The wife admitted adultery and said that the adulterer was the true father of the child. The claim failed in both the Primary and the District Courts because according to Gogo customary law every child born during the subsistence of the marriage I

A is a child of such marriage. On appeal to this Court, Hamlyn, J. dismissed the appeal stating:

It would of course be quite improper to allow the claim of the woman in circumstances such as these, or B even to accept such evidence as having any bearing on the matter....It is clear that the local customary law contains not only basic robust commonsense but that it also accords with more sophisticated codes in this matter.

C And in the famous words of Kwikima, A.g J. in the case of Mgowa Madola v Mgogolo Dododo [1973] LRT n. 7:

Anyone who sires a child adulterously cannot be heard to claim it. Even if such were not the accepted D custom, the ethics of our present time would not tolerate an adulterer benefiting from his sin to the detriment of his cuckold.

I agree. I think, therefore, that to the extent that the cases of Richard Mapesa and Mungasio E Muchari held Rule 175 to be inapplicable to children born adulterously, they cannot be said to have been correctly decided. I venture to suggest with perfect respect, that these decisions proceed on a misconception of legitimacy as a biological state when in fact it is a legal status. A child is legitimate F or illegitimate not merely from the circumstances of its birth but because the law declares so. Customary law declares that children born during the subsistence of the marriage are legitimate children of the husband. That is the end of the matter unless the husband himself, but not the wife or the adulterer, elects and is able to rebut the presumption. This also disposes of the trial court's G reference to Rule 183. That provision applies to children born of unmarried women but does not licence a married woman to behave as if she were a wild tree from which any man could gather fruit.

As stated earlier the respondent is the father of the child Juma and I uphold the District Court's H declaration on the issue. I also think that the issue of custody was rightly decided although for different reasons. Juma is now seven years of age and has throughout been in the custody of the appellant. It would not be in his interests to disturb him by placing him in the custody of the respondent, a person he probably does not know. In fact the respondent never appealed against the I order denying him custody and had adduced no evidence as to how he could better secure the child's welfare.

1984 TLR p46

Save for the issue of custody, therefore, the appeal is otherwise dismissed. There will be no order as A to costs.

Order accordingly.

1984 TLR p46

B

[zRPz]RASHID NKUNGU v ALLY MOHAMED 1984 TLR 46 (HC)

Court High Court of Tanzania - Singida

Judge Lugakingira J

November 22, 1985

CIVIL APPEAL 22 of 1984 C

Flynote

Civil Practice and Procedure - Judgment - Dispute over ownership of land - Whether decision maintainable where the trial court entered judgment after framing the issues without allowing parties to adduce evidence. D

-Headnote

The appellant claimed a piece of land from the respondent. The Primary Court Magistrate framed only one issue, namely, to which party the disputed land belonged. The Magistrate then proceeded to sum up the case to the assessors who gave opinion in favour of appellant. The Magistrate E entered judgment accordingly whereafter the respondent successfully appealed to the District Court. Appellant then brought this appeal.

Held: (i) As no evidence was adduced there was no basis for the summing up to the assessors' and F the judgment that followed;

(ii) pleading which is all there was before the court are not evidence and cannot be the basis of a decision except where they amount to admissions which was not the case in the instant case; G

(iii) the irregularity went to the root of the entire proceeding for, in effect, there was no trial at all.

Case Information

Appeal allowed. H

No case referred to:

[zJDz]Judgment

Lugakingira, J.: The appellant claimed a piece of land from the respondent. At the commencement of the proceeding in the Primary Court the appellant briefly stated the substance and basis of his I claim and the respondent briefly stated

A the substance of his defence. At that juncture the trial magistrate framed one issue, namely, to which of the parties the disputed land belonged. Then, and without more, he summed up the case to the assessors who gave opinions in favour of the appellant, and judgment was entered accordingly. B The respondent successfully appealed to the District Court, and the appellant brought this appeal.

I do not have to go into the merits of the appeal as I think the proceeding was a nullity. No evidence was adduced. It follows that there was no basis for the purported summing up, the assessors' opinions and the judgment. What there was were just pleadings, but pleadings are not evidence and C cannot be the basis of a decision except where they amount to admissions, which was not the case here. I am of the view that the irregularity went to the root of the entire proceeding for, in effect, there was no trial at all.

The proceeding is quashed in its entirety with liberty to the appellant to institute fresh proceedings D if so minded. The parties will bear their respective costs here and below.

Appeal allowed.

E

[zRPz]MWENDWA MTINANGI v JUMA MAHUMBI 1984 TLR 47 (HC)

Court High Court of Tanzania - Singida

Judge Lugakingira J

November 22, 1984

F CIVIL APPEAL 25 OF 1984

Flynote

Civil Practice and Procedure - Assessors - Whether trial court's award invalid where assessor does not express opinion.

G Family Law - Cohabitation - Whether court can compel cohabitation - Law of Marriage Act, 1971 section 140.

-Headnote

The respondent sued the appellant before the Primary Court for adultery and claimed compensation. The adultery was found established and compensation awarded but the respondent appealed to the H District Court against the measure of the compensation and the court allowed the appeal. That decision prompted the present appeal.

Held: (i) An award of a Primary Court is a valid award so long as it proceeds on a majority view even I if one of the assessors does not express his opinion thereon;

1984 TLR p48

LUGAKINGIRA J

(ii) in view of section 140 of the Law of Marriage Act, 1971 no court is empowered to compel A cohabitation.

Case Information

Appeal allowed.

No case referred to. B

[zJDz]Judgment

Lugakingira, J.: The respondent sued the appellant before the Primary Court for adultery claiming compensation of seven head of cattle. The adultery was found established but the respondent was awarded two head of cattle only. He appealed to the District Court against the measure of C compensation and the court allowed the appeal, awarding him seven head of cattle or 7,000/= as originally prayed. That prompted the present appeal.

In deciding as he did, the learned appellate magistrate proceeded on two grounds. Firstly, he was of D the view that the trial court's award was invalid because only one of the two assessors did express his opinion on the question of compensation. Secondly, he considered it an aggravating factor attracting enhanced compensation the fact that the appellant "alimtwaa Fatuma (the E respondent's wife) na kuishi naye nyumbani kwake, na kadhalika."

I have given consideration to these grounds but I think, with respect, that they proceed on a misapprehension of the law. First of all, it is true one of the assessors expressed no opinion on compensation on the quantum thereof. However, it has to be appreciated that decisions in Primary F Courts proceed on the majority view, and this includes the view of the trial magistrate. In this case, the trial magistrate adopted the view of one of the assessors in the course of judgment and this, to my mind, made that view a majority view. I am thus unable to agree with the appellate magistrate that G the award was invalid for to say so presupposes that the trial magistrate had no vote, which is incorrect. In my judgment an award of a Primary Court is

a valid award so long as it proceeds on a majority view even if one of the assessors does not express his opinion thereon. It is in fact interesting that the assessor who was silent on compensation signed the judgment. In effect, H therefore, the award was unanimous.
Next, I do not see, really, how the appellant's act of cohabiting with the respondent's wife constituted an aggravating factor. After all, that was the adultery complained of. The appellate I magistrate expressed anxiety that the respondent's marriage was imperilled,
1984 TLR p49
A but I cannot see the significance of this since, in fact, that is the effect of adultery. Perhaps more unfortunate is that the learned magistrate's reaction overlooked the local (Nyaturu) law on the subject. According to the assessor who expressed himself on the matter, the customary B compensation for adultery is one calf. The assessor then suggested the imposition of an additional cow because of the trouble the appellant had occasioned to the respondent. In other words, the second cow was good way of exemplary or punitive damages. The trial court thus considered the law and the surrounding circumstances in awarding the compensation it did. I think there is C authority for saying that where the decision of a Primary Court is based on the local customary law that decision cannot be interfered with on appeal unless the law on which it is based is patently unconscionable. I find nothing unconscionable in the Nyaturu law on this subject. On this ground, D too, the decision of the District Court is difficult to support.
The decision of the trial court may be criticized in one aspect. The court also ordered Fatuma to return to the respondent and even threatened her and the appellant with criminal proceedings if she E did not comply with the order. That order was unlawful in view of the provisions of section 140 of the Marriage Act, 1971. Under no circumstances is a court empowered to compel cohabitation.
I allow the appeal with costs, set aside the judgment of the District Court and restore the judgment of the Primary court. The respondent will have his 2000/= which I gather is already paid into the F Primary Court. However, I set aside the order compelling Fatuma to return to the respondent.
Appeal allowed
1984 TLR p49
G
[zRPz]SELEMANI RAMADHANI v ALLY JUMA 1984 TLR 49 (HC)

Court High Court of Tanzania - Singida
Judge Lugakingira J

November 23, 1985
CIVIL APPEAL 27 of 1984
Flynote
H Civil Practice and Procedure - Jurisdiction of Primary Courts - Whether a Primary Court has jurisdiction to try a common law tort of malicious prosecution.

-Headnote

The appellant was the complainant in a criminal case in which the respondent was charged with I shop breaking and stealing before Mtinko Primary Court in Singida district. The respondent was

1984 TLR p50

LUGAKINGIRA J

acquitted and thereafter he sued the appellant for defamation. The Primary Court allowed the action A awarding the respondent 3,600/= in general and special damages. The appellant's appeal in the District Court failed. This is a second appeal.

Held: (i) In civil proceedings the jurisdiction of a primary court arises, inter alia, where the suit is B founded in customary law;

(ii) the instant suit was in fact that of malicious prosecution, a common law tort, which is an alien concept without expression in customary jurisprudence, therefore the Primary Court was incompetent to try it. C

Case Information

Order accordingly.

Cases referred to: D

1. Daniel v Konyak [1971] H.C.D. n. 323

[zJDz]Judgment

Lugakingira, J.: In Criminal Case No. 33/83 of the Primary Court at Mtinko in Singida district, the respondent Ally Juma was prosecuted for shop breaking and stealing. The appellant Selemani E Ramadhani was the complainant in that case. The respondent was acquitted. Thereafter he sued the appellant in the same court for defamation claiming 20,000/= in general damages and 1,600/= in special damages, the latter being his alleged costs in the court of the criminal proceeding. The action was allowed and the respondent was awarded, 3,600/= in general and special damages. This is the F second appeal following the appellant's unsuccessful appeal to the District Court.

Unfortunately, I cannot go into the merits of the appeal seeing, as I do, that the Primary Court had not jurisdiction in the matter. In civil proceedings the jurisdiction of a primary court arises, inter alia, G where the suit is founded in customary law. The instant suit was in fact that of malicious prosecution which is a common law tort. Criminal prosecution, as a machinery for determining guilt or innocence, is a procedure without equivalent in customary practice, but is wholly derived from statute. The tort of malicious prosecution is thus an alien concept which does not find expression in H customary jurisprudence. I am therefore of the view, which view is also to be found in Faniel v Konyak [1971] HCD n.323, that the Primary Court was incompetent to try the suit. This incompetence did not only arise from the point of view of jurisdiction, but was also manifested in the I very handling of the suit. The court never considered whether

1984 TLR p51

A there was reasonable and probable cause for the prosecution and never heard evidence in support of the special damages. In short the suit was virtually untried.

The proceeding is accordingly quashed. The respondent is at liberty to institute the suit in the B Resident Magistrate's court. I make no order as to costs.
Order accordingly.
1984 TLR p51
C
[zRPz]JUMANNE JINGI v NJOKA KIDUDA 1984 TLR 51 (HC)

Court High Court of Tanzania - Singida
Judge Lugakingira J

November 26, 1985
CIVIL APPEAL 29 OF 1984
Flynote
D Family Law - Adultery - Damages for - Where party not validly married - Whether suit for damages for adultery can be sustained - Law of Marriage Act, 1971, s. 72(2).
-Headnote
The appellant lost in the Primary Court and the District Court in an action for damages for adultery E and therefore appealed to the High Court.
Held: A suit brought under section 72 of the Law of Marriage Act, 1971 shall be dismissed if the F defendant satisfies the court that he did not know and could not by exercise of reasonable diligence have known that the person with whom he or she committed the act of adultery was married;
Case Information
G Appeal dismissed.
No case referred to.
[zJDz]Judgment
Lugakingira, J.: The appellant lost in the Primary Court and the District Court in an action for H damages for adultery and therefore appealed here.
This appeal ought similarly to fail. There was overwhelming evidence that the respondent's cohabitation with Mwai Amina Maghuna - the lady the appellant calls his wife - was preceded by the I usual and necessary betrothal preliminaries, including the payment of brideprice. The respondent therefore genuinely believed that he
1984 TLR p52
LUGAKINGIRA J
was taking a free woman. Section 72(2) of the Law of Marriage Act, 1971 provides: A

(2) A suit brought under this section shall be dismissed if the defendant satisfies the court that he or she did not know and could not, by the exercise of reasonable diligence, have known that the person with whom he B or she committed the act of adultery was married.

It is evident that by the betrothal and payment of brideprice the respondent reasonably believed that Mwai was unmarried. The suit and the first appeal were therefore rightly dismissed in the light of the C above provision.

I think the appeal ought to fail on yet another ground. It is in fact doubtful whether the appellant was ever validly married to Mwai or was himself an adulterer. The evidence further shows the D following. Mwai was first married to one Karai Kiseke. She then left this man (we do not know how) and "married" the appellant. In 1978 she abandoned the appellant and returned to Karai. In 1982 she was formally divorced from Karai in Matrimonial Cause No. 23/82 of the Primary Court at Ngimu. It E was following this event that she married the respondent in 1983. The fact that Mwai had to be formally divorced from Karai suggests that their marriage was subsisting during her cohabitation with the appellant. At any rate, the burden was on the appellant to prove that he had been validly married to this woman before he could be heard to complain of adultery. This burden was not F discharged as the appellant adduced no evidence of the circumstances in which he came to cohabit with her other than that she had left Karai. Therefore the suit did not disclose a cause of action. For these reasons the appeal is dismissed with costs. G

Appeal dismissed. H

1984 TLR p53

A

[zRPz]JUMA MAKIYA v HAMISI MOHAMED 1984 TLR 53 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

November 27, 1985

CIVIL APPEAL 34 of 1984

Flynote

B Civil Practice and Procedure - Primary Courts Civil Procedure Rules, G.N. No. 310/64 rule 16(1) - Whether withdrawal of suit is conclusive evidence of liability in a claim for compensation.

Civil Practice Procedure - Primary Courts Civil Procedure Rules - Whether in a claim for costs, the claimant C must adduce evidence to prove the alleged expenses.

Civil Practice and Procedure - Primary Courts Civil Procedure Rules - Whether Court proceedings are an inconvenience for which damages are recoverable.

-Headnote

D The appellant sued the respondent in a suit for recovery of a piece of land. He later withdrew the claim when proceedings at Singida Urban Primary Court were at an advanced stage. The court made no consequential orders. The respondent then sued the appellant for a sum of 8,214/- being E compensation for lost crops and expenses consequential to the said suit. The court awarded the respondent 600/- for witnesses expenses and 400/- for "inconvenience". It rejected

the rest of the claim. The appellant unsuccessfully appealed to the District Court, hence brought this second appeal.

F Held: (i)Under rule 16(1) of the Primary Courts Civil Procedure rules, G.N. No. 310/64, a claimant may at any time withdraw a proceeding or abandon part of his claim and in doing so he would not ipso facto incur liability;

G (ii) the courts below ought not have addressed themselves to the withdrawal of the suit rather than the truth and availability of respondent's claim;

(iii) this having been a claim for costs it was necessary to prove it with documentary or reliable oral evidence without which there was no basis for the award;

H (iv) compensation for "inconvenience" of attending court implies that court proceedings are an inconvenience for which damages are recoverable, a view which should not be subscribed to.

Case Information

I Appeal allowed.

No cases referred to.

1984 TLR p54

LUGAKINGIRA J

[zJDz]Judgment

Lugakingira, J.: In Civil Case No. 86/82 of the Urban Primary Court at Singida the appellant Juma A Makiya sued the respondent and two others to recover a piece of land. At an advanced stage of the proceeding the appellant withdrew the suit and it was so marked but without consequential orders. The respondent then commenced the present proceedings claiming in all 8,214/- as compensation for B lost crops and expenses incurred in consequence of the said suit. The trial court awarded him 600/- for witness expenses and 400/- for "inconvenience" and rejected the rest of the claim. The decision was upheld by the District Court and this is the second appeal. C

The problem with the courts below was simple. They addressed themselves to the withdrawal of the suit rather than the truth and availability of the respondent's claim. Under rule 16(1) of the Primary Courts Civil Procedure Rules, G.N. No. 310/64, a claimant may at any time withdraw a proceeding or D abandon part of his claim and in doing so he would not ipso facto incur liability. The respondent had, therefore, to establish his claim. I note that he claimed 600/- for three witnesses for four days but there was no scintilla of evidence in support of that expenditure. The respondent's witness Haji Lesso, the only witness who testified in both suits, never alluded to any expenditure. But this E having been a claim for costs it was necessary to prove it with documentary or reliable oral evidence. There was no such evidence and, therefore, there was no basis for the award. It was unsafe to act on the respondent's bare assertion for that could have been anything. I then found it interesting that the respondent was also compensated for the "inconvenience" of attending court. This implies that F court proceedings are an inconvenience for which damages are recoverable. I do not subscribe to that view.

The appeal is allowed with costs, the decisions of the lower courts being set aside. G

Appeal allowed. H

A

[zRPz]PUNDI ILANDA v ALLI KWIMBA 1984 TLR 55 (HC)

Court High Court of Tanzania - Singida
Judge Lugakingira J

November 29, 1985

B CIVIL APPEAL 37 OF 1984

Flynote

Civil Practice and Procedure - Hearing - Altering the nature of claim at hearing - Whether allowable under Primary Courts' Civil Procedure Rules - Rule 44 of the Primary Court's Civil Procedure Rules.

C Family Law - Maintenance - Compensation for maintenance of deceased's children while cohabiting with their mother.

-Headnote

The appellant commenced the action in the Primary Court claiming compensation for alleged D maintenance of the respondent's deceased brother's children. In the course of testimony, however, the appellant abandoned his original claim and claimed the children themselves. The court ignored the discrepancy and went ahead to grant the compensation against which the respondent successfully appealed against in the District Court hence the present appeal.

E Held:It is nowhere provided in the Primary Courts Civil Procedure Rules for a claimant to alter the nature of his claim at the hearing; on the contrary, rule 44 which provides for settlement of issues at F the first hearing implies necessarily that a claimant is limited to the pleadings.

Case Information

Appeal dismissed.

No case referred to.

[zJDz]Judgment

G Lugakingira, J.: The appellant commenced action in the Primary Court claiming 12,000/- in compensation on the allegation that he had maintained the respondent's deceased brother's four children for twelve years. In the course of his testimony, however the appellant came up with a H different claim, namely the children themselves. The trial court took notice of the discrepancy but ignored it and proceeded to award the appellant the sum claimed. It held, however, that the appellant maintained the children for eight years, that being the period he had cohabited with their mother. I From this decision the respondent successfully appealed to the District Court and that prompted the present appeal.

I think the District Court rightly reversed the decision of the trial court. As the record perfectly A indicates the appellant abandoned his claim and came up with something different. There was

no evidence on the claim as such which then ought to have been dismissed. It is however provided in the Primary Courts Civil Procedure Rules for a claimant to alter the nature of his claim at the hearing. B On the contrary, rule 44 which provides for settlement of issues at the first hearing implies necessarily that a claimant is limited to the pleadings. The District Court was therefore justified in its action for the irregularity was not a mere technicality which could have been ignored. C

There are indications, indeed, that the irregularity occasioned a failure of justice. Before the District Court the appellant indicated that none of the four children was aged over three years. Now, it is impossible to maintain a child for twelve or even eight years if it is aged three years. The trial court D thus proceeded perilously in the absence of relevant evidence. I had the advantage of seeing and hearing the appellant. He is old and confused. Unfortunately, that does not entitle him to gratuitous judgments.

The appeal is dismissed with costs. E

Appeal dismissed.

1984 TLR p56

F

[zRPz]ELIZABETH SAIWA v YOHANA MPAHI 1984 TLR 56 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

December 3, 1985

CIVIL APPEAL 56 of 1984 G

Flynote

Family Law - Inheritance - Right of childless widow to share in assets of marriage - Whether contingent upon any considerations - Para 77 of the Customary Law Declaration Order, G.N. No. 279/63. H

-Headnote

The appellant was married to the respondent's brother for twenty years and had no child of the marriage. In January 1984 the husband died in circumstances evoking local suspicions and the appellant was expelled from the village. She then sued the respondent, the administrator of the deceased's estates for her share in the property acquired during her marriage. In the absence of I evidence as to the

1984 TLR p57

LUGAKINGIRA J

A nature and quantity of assets the District Court had reduced the lower court's award of nine head of cattle, thirteen goats, one sheep and Shs. 1,500/- to four head of cattle and 1,500/- as reasonable marriage gratuity. The present appeal challenges that award.

B Held: (i) The right of a childless widow to a share in assets of the marriage is not contingent upon any considerations but is one secured by statute under para 77 of the Customary Law Declaration Order, G.N. No. 279/63;

C (ii) in the absence of evidence on the assets, it is impossible to satisfy the requirements of para 77 of G.N. No. 279/63 and it was entirely to the discretion of the court to decide what payment was reasonable in the circumstances of each case.

Case Information

D Appeal dismissed.

No case referred to.

[zJDz]Judgment

Lugakingira, J.: The appellant was married to the respondent's brother for twenty years. They had E no child but the husband had children from another union. In January 1984 the husband died in circumstances evoking local suspicion and the appellant was expelled from the village. She then sued the respondent, the administrator of the deceased's estates, for her share in the property acquired during the marriage.

F From the beginning the respondent's defence has been that he did not expel the appellant, but the village did. True; the appellant's banishment was preceded by two villagers' meetings, but the argument has no merit since the respondent was a party to, and the moving spirit in, the illegal G enterprise. Besides, the right of a childless widow to a share in assets of the marriage is not contingent upon any considerations - superstitious considerations least of all - but is one secured by statute (see para. 77 of the Customary Law Declaration Order, G.N. No. 279/63).

The problem of the lower courts, the problem I also face, is that there was no evidence of the H existence, nature and quantity of the assets acquired during the marriage. It seems that the appellant relied on the inventory annexed to her pleadings, but, unfortunately, pleadings are not evidence. In his own evidence the respondent claimed that the deceased was survived by four head of cattle and I that these comprised his entire estates. He certainly was not believed by the trial court which awarded the appellant nine head of cattle,

thirteen goats, one sheep and 1,500/- for household items as prayed. In the absence of evidence, A however, the District Court reduced this to four head of cattle and 1,500/- as reasonable gratuity for a marriage that lasted 20 years. The present appeal challenges that award.

It is difficult to fault the approach of the District Court. In the absence of evidence on the assets, it is B impossible to satisfy the requirements of para 77 aforesaid. The burden was on the appellant to adduce that evidence and its absence meant a corresponding weakness in her case. It was then entirely to the discretion of the Court to decide what payment was reasonable in the circumstances C of the case. Bearing in mind that the marriage lasted 20 years and considering the appellant's expulsion as a superstitious aberration, I think four head of cattle and 1,500/= satisfied the justice of the case. The appellant will have that or 5, 500/- in cash.

The appeal is therefore dismissed but there will be no order as to costs. D

Appeal dismissed.

E
[zRPz]SUSANA SHIJA v PAULINUS KAZULUNGA 1984 TLR 58 (HC)

Court High Court of Tanzania - Mwanza
Judge Katiti J

April 30, 1985
CIVIL APPEAL 4 OF 1984 F
Flynote
Family law - Division of Matrimonial assets in the nature of matrimonial proceedings - Law of Marriage Act, 1971 - Part VI.
Civil Practice and Procedure - Matrimonial Proceedings - Appeal from Primary Court to District Court - Whether any District Court has jurisdiction to hear appeal from Primary Court - Law of Marriage Act, 1971 G s.80 as amended by Act No. 15 of 1980.
-Headnote
The appellant in this case had been granted an ex-parte judgment by the Sengerema Urban Primary Court for a 50% share in a matrimonial house and the respondent's application to have the ex-parte H judgment set aside was unsuccessful, and he filed an appeal in Sengerema District Court. For reasons which are unknown the Senior Resident Magistrate in Mwanza ordered the appeal to be heard in Mwanza by a particular Resident Magistrate who did hear and allow the appeal. The I appellant is now challenging that decision.
1984 TLR p59
KATITI J
A Held: (i) Under section 80 of the Law of Marriage Act, 1971 as amended by Act No. 15 of 1980 an aggrieved party in any matrimonial proceedings commenced in a Primary Court is allowed to appeal from that court, first, to the District Court;

(ii) under section 16 of the Magistrates' Courts Act, 1984 any party, aggrieved by an order, or B decision of the Primary Court is allowed to appeal therefrom to the District Court of the District for which the Primary Court is established.
Case Information
Order accordingly.
C No case referred to.
F.B. Mahatane for the appellants.
S.R. Kahangwa for the respondent.
[zJDz]Judgment
D Katiti, J.: This case has unfortunately may be inadvisably, taken a tortuous meandering, if not also a stumpy course. Susan Shija and Paulinus Kazulunga, herein the appellant and the respondent respectively, who had enthusiastically and wilfully entered a matrimonial bond, publicly promising E monopoly of the same to the exclusion of all others, as wife and husband respectively, found themselves matrimonially asunder in Nyalikungu Primary Court, Maswa,

Civil Case No. 6 of 1979. While the issue of custody of the children of the marriage, was revisited in Tabora High Court F Matrimonial (PC) Civil Appeal No. 4 of 1979, the question of division of matrimonial property, in this case a house situated in Sengerema Township, remained an uncomfortable thorn in their flesh. So, Susana Shija filed an action, Civil Case No. 25/1982 in Sengerema Urban Primary Court, seeking division of matrimonial property - i.e. the house situated in Sengerema plot No. 38 Block B. As G claimed by the appellant, the respondent failed, or ignored to honour notices of hearing dates the court allowed the appellant to proceed ex-parte, and hence the court's verdict, that the appellant was entitled to 50% of the value of the house. The respondent's application to have the ex-parte judgment set aside, was unsuccessful.

H The option open to the respondent was to appeal, and indeed, through the services of a Mwanza based advocate Mr. Kahangwa, an appeal was lodged before Sengerema District Court - hence Sengerema District Court Civil Appeal No. 5 of 1984. For reasons that I shudder to speculate on, I unsafe as it is, the Senior Resident Magistrate called for the record in the manner as is hereunder, inter alia shown:

1984 TLR p60

KATITI J

Having perused the file and having checked the District Magistrate's Order, I order that the appeal be heard A here in Mwanza. Mr. Mwihava Resident Magistrate, to hear the same on the date he will fix, and transmit to parties.

Sign. B

Senior Resident Magistrate

I am not here primarily concerned with the confusion between an administrative and a judicial function, inherent in the excerpt above. I shall proceed to point out, that indeed Mr. Mwihava sitting C in Mwanza District Court, heard the appeal lodged in Sengerema District Court, and while the caption of his judgment read, "IN

THE DISTRICT COURT OF SENGEREMA, AT SENGEREMA CIVIL APPEAL NO. 5 OF 1984, the caption of the decree loudly reads - IN THE DISTRICT COURT OF MWANZA, AT MWANZA. D CIVIL APPEAL NO. 6 OF 1984. The culmination of the hearing of this appeal, was that the appeal was allowed, and the Sengerema Primary Court ex-parte judgment and attendant order, or orders were set aside.

The appellant Susan Shija has through the able agency of Mr. Mahatane, an Arusha based advocate E appealed against the decision of the District Court Mwanza, in its appellate capacity, on the following grounds:

(i) That the Learned Resident Magistrate sitting in the District Court At Mwanza, had no jurisdiction to adjucate over the Appeal. F

(ii) That the learned Resident Magistrate, failed to direct himself on the point of law, to the effect that the Application which had been filed at Sengerema Primary Court by the Respondent on 17th January, 1984 was time barred. G

(iii) That Learned Resident Magistrate erred in admitting on appeal the Exhibit of the copy of the Police message, from the hands of the Respondent, who had never had the custody of that document, and who was not the author or the recipient of the same. H

(iv) The Learned Resident Magistrate erred in that he did not note in the record, that there was no evidence by the Respondent that he had informed his employers, that he had been summoned to attend the Court at Sengerema on 15th October 1983, and that the employer had refused that request from him. I

(v) The Learned Resident Magistrate erred, in that he failed to

1984 TLR p61

KATITI J

A take into account the fact that the decree of the Primary Court, had been executed and the house had been sold long before the application for setting aside the decree had been filed in Court.

(vi) The Learned Resident Magistrate erred in law in failing to note that an Application for B division of matrimonial assets under Section 114 of the Law of Marriage Act 1971 is not affected by the provision of Paragraph 21 Part (iii) of the Schedule to the Law of Limitation Act 1971, and that it can be filed in Court independently of the decree of divorce.

C (vii) The Learned Resident Magistrate erred in law in failing to appreciate the heavy burden of proof placed upon the Respondent, in proving the sufficiency of the reasons for failing to attend the hearing of the case.

(viii) The Learned Resident Magistrate erred in law in that he shifted the burden of proving the D insufficiency of the reasons for non-attendance the hearing of a suit.

(ix) The Learned Resident Magistrate erred in taking into account matters not relevant in law in determining the issues before him.

E (x) The Learned Resident Magistrate erred in setting aside the decision of the Primary Court, and the order made thereunder without sufficient grounds.

F REASONS WHEREFOR the Appellant prays the Honourable Court to set aside the decision of....

I shall hereafter deal with all the grounds of appeal seriatim or sequentially if need be. The first ground of appeal, as it does sequentially appear to be, is that the learned Resident Magistrate sitting G in the District Court at Mwanza had no jurisdiction to adjudicate over the appeal. Mr. Mahatane did warriorlike forcefully and eloquently cite several, if not many sections, from the Magistrates' Courts Act Cap 537 and or as repealed and re-enacted with modifications by the Magistrates' Courts Act 1984, that came into application on 1/7/1984.

H Having scrupulously invested efforts and scrutiny over the case generally, I feel convinced and satisfied that the answer to the 1st ground of appeal above, may be gathered from first, the subject matter, second the appellate tier system and third, the courts' territorial jurisdiction obtaining for the I time being. In this case the subject matter was a prayer, subsequent to divorce for the division of matrimonial assets, a house, purportedly acquired through joint

1984 TLR p62

KATITI J

efforts by the appellant and the respondent during the life of their marriage. The division of A matrimonial assets being as it does, a prayer, that falls under the provisions of section 114(1) of the Law of Marriage Act 1971, is of the nature of matrimonial proceedings under part VI of the

Marriage Act. It does follow jurisdiction wise, that a Primary Court, which Sengerema Urban Court is, has B jurisdiction to entertain, inter alia prayers for division of matrimonial assets, from either of the parties.

The above, I think, is not an exercise in superfluity, as it does establish the jurisdictional base of the Primary Court, in the subject matter, lest the cart is placed in a position to pull the horse. The right of C appeal from the decision of a court, be it original, or of first instance, or intermediate, is statute given, and relevant to this case, it is the Law of Marriage Act, section 80, as amended by Act No. 15 of 1980, that where in a matrimonial proceeding, which proceedings these were, a party is aggrieved D by any decision, or order of a Primary Court, if the action is filed there, may appeal from that Court, first, to the District Court.

The appellate tier system at this stage is, as it will presently and obviously emerge, inextricably linked with territorial jurisdiction. A District Court, exercising jurisdiction within that very district, in E which it is established, - see section 2 and 4 of Magistrates Courts Act 1984 or section 2 and 5 of Magistrates Courts Act Cap. 537. Correspondingly, it is even trite that a Primary Court is established in every district, and does exercise jurisdiction within that very District, in which it is established. It F cannot be imagined I think, in the absence of anarchy which we do not have, that the order and direction of flow of appeals, are other than statutory creatures, to ensure justice. In the direction of flows of appeals posed herein above, we have the legislature through section 20 of the Magistrates' Courts Act 1984, or section 16 of the repealed and re-enacted act Cap. 537, providing as follows: G

Section.: 20 (1) Save as hereinafter provided:

(a) ....

(b) In any other proceedings, any party, if aggrieved by an order of the Primary Court, may appeal H herefrom to the District Court of the District for which the Primary Court is established.

I think, first it befits the occasion to untimorously associate myself with the underlining above - it is I mine. But, second, more

A important is the import of the underlined part, that appeals from Primary Courts have to be lodged in the District Court of the District for which the Primary Court is established. If I venture to relevantly relate the import of the above provisions, to the instant case, appeals from Sengerema B Urban Primary Court, or from any primary Court in Sengerema District, in the absence of statutory provisions to the contrary, which we do not have, are supposed to be filed in Sengerema District, which by virtue of Section 80 of the Marriage Act 1971, in case of matrimonial proceedings, and Sections now 4 and 20 of the Magistrates' Courts Act 1984, or Sections 5 and 6 of the repealed and C re-enacted Act Cap. 537, has jurisdiction to adjudicate upon such appeals.

Having given anxious consideration to the record in this appeal, I have noted with a shadow of doubt, that the respondent, had infact through Mr. Kahangwa, a Mwanza based advocate appealed D to Sengerema District Court - hence Sengerema District Court Civil Appeal No.

5/1984. But for all we know, this record was summoned by the Senior Resident Magistrate, and asigned to Mr. Mwihava a Resident Magistrate. Although the learned Resident Magistrate's judgment is headed E "IN THE DISTRICT COURT OF SENGEREMA, at Sengerema and the decree signed by him captioned - IN THE DISTRICT COURT OF MWANZA AT MWANZA, there is no shadow of any F doubt, that this appeal was heard and ajudicated upon, at Mwanza, in Mwanza District Court. It is at this juncture, that finally the question whether a Resident Magistrate sitting in Mwanza District Court, or call it any district court in Mwanza District has the legal competence to adjudicate over an appeal, for a different district, be in Sengerema, or over a case registered in Sengerema District Court, becomes immediately pertinent.

G If we pay an obedient visit to the law - see Section 6(1) and 7(1)(c) of the Magistrates Courts Cap 537, now Section 5(1) and 6(1)(c), it is trite law that a court of a Resident Magistrate is duly constituted when held by a Resident Magistrate. But this is no answer to the issue, as in law, the Court of Resident Magistrate per se, has no appellate jurisdiction over matters originating from H Primary courts, neither as per Magistrates Courts Acts, nor does Section 80 of the Marriage Act 1971, confer such powers on a Court of a resident Magistrate. It follows that a Resident Magistrate, holding a resident Magistrate's Court, has no appellate jurisdiction, over matters originating from Primary Courts, in the region to which he is assigned.

I There is an argument, which could be attractive, that, as the term, "District Magistrate" includes a Resident Magistrate, therefore

such magistrate has power to hear appeals from Primary Courts. This argument is not totally A fallacious, for it all depends on whether or not the said Resident Magistrate is sitting as a District Magistrate, in the District Court, to exercise jurisdiction, within the District in which such District Court is established. In this case, the Resident Magistrate sitting as he did in the District Court of B Mwanza, established for Mwanza District, could rightly be construed, as having sat therein as a Mwanza District Magistrate, and for the purpose of appeals from Primary Courts, such as Mwanza District Court, has jurisdiction to adjudicate over appeals from Primary Courts established in Mwanza District; and not Sengerema District, as the same Magistrate was not sitting as Sengerema C District Magistrate. It follows as night follow daylight, that the Resident Magistrate, sitting as a District Magistrate, in Mwanza Court, had no competent jurisdiction to adjudicate over appeals registered in Sengerema District Court, and originating from Primary Courts, established in D Sengerema District, unless extended jurisdiction has been conferred upon such contiguous District Courts by the Hon. The Chief Justice, and this has not been done.

As the jurisdiction issue does effectively forestall or preempt other grounds of appeal, it would be undesirable, for fear of prejudging the issue involved to entertain them. For want of legal E jurisdictional competence as manifestly shown above, the judgment and attendant orders, if any, by the resident Magistrate, are hereby declared a nullity. It is hereby ordered that, the proper appeal be heard by a Court of competent jurisdiction - Sengerema District Court. The appeal is allowed with F costs.

Order Accordingly. G

H

[zRPz]PETER NDERIA MUSHI v THE MINISTER FOR LAND HOUSING AND URBAN DEVELOPMENT 1984 TLR 64 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Mustafa JJA, Makame JJA and Kisanga JJA

October 1, 1984
CIVIL APPEAL 10 OF 1984
Flynote
Land Law - Customary leasehold - Lease surrendered before application of Enfranchisement Act - Whether land enfranchised - Customary Leaseholds (Enfranchisement) Act No. 47 of 1968. I 1984 TLR p65

A Civil Practice and Procedure - Jurisdiction - Customary leasehold - Customary Land Tribunal and Minister for Lands - Whether they have jurisdiction over land formerly held under a customary leasehold but ceased to be so held before application of Enfranchisement Act.

B Civil Practice and Procedure - Appeal - Customary land Tribunal - Appeal to Minister - Additional evidence - Whether party has right to cross-examine witnesses against him.

C Civil Practice and Procedure - Appeal - Customary Land Tribunal - Appeal to Minister - Parties - Whether persons not parties to original proceedings can be joined.

Civil Practice and Procedure - Appeal - Customary Land Tribunal - Appeal to Minister - Decision does not identify persons entitled to award - Whether proper.

D Civil Practice and Procedure - Appeal - Customary Land Tribunal - Appeal to Minister - Award given to person not party to proceedings - Whether proper.

-Headnote

The appellant's deceased father had granted a customary lease over land situated at Kibosho to the E respondent's deceased father. Before the Customary Leaseholds (Enfranchisement) Act was applied to Kilimanjaro Region in October 1969, the lease was surrendered by the respondent's father and the appellant's father bequeathed it to the appellant. When the appellant moved into F possession the respondent objected and lodged an unsuccessful complaint in the Primary court. The court found the appellant to be the lawful owner. The respondent then, assisted by the police, evicted a number of people who were occupying part of the land. One of them, Thomas Lesio, unsuccessfully sued him in the Kilimanjaro Customary Law Tribunal which ruled that the matter was G res judicata! An appeal to the Minister for Lands was preferred. The Minister found that the land had been under a customary lease for a long time, and that because the appellant had willingly accepted the people onto the land there were customary leases held by all of them until the day they were evicted. He further found that the land thus held under customary leases had been H enfranchised by the Customary Leaseholds (Enfranchisement) Act 1969 and therefore the appellant could not evict those in occupation. The appellant's application for order of certiorari to quash the Minister's decision was unsuccessful.

I Held: (i) The disputed land is not one to which the Customary Leaseholds (Enfranchisement) Act applies and therefore neither the
1984 TLR p66
KISANGA JA
Kilimanjaro Customary Land Tribunal nor Minister had jurisdiction to adjudicate upon the dispute A relating to such land;

(ii) when additional evidence is taken in an appeal to a Minister, the party against whom the appeal is preferred should be afforded an opportunity to cross-examine those who testify against his interest and if necessary, be allowed to call his own additional witnesses; B

(iii) it is clearly wrong to join on appeal a person who was not a party to the trial;

(vi) it is a serious error to award title and possession of land to unidentified persons; such award is practically meaningless; a proper decision must clearly identify the parties whose rights and C obligations have been determined in the particular suit.

Case Information

Appeal allowed.

No cases referred to. D

T.S. Kinabo and F. Lyasenga for the appellant

M.H.P. Ntingele for the respondent.

[zJDz]Judgment

Kisanga, J.A.: read the following considered judgment of the Court: This appeal arises from the E ruling of the High Court at Arusha (Mroso, J.) refusing to grant an application for certiorari to set aside the decision of the Minister for Lands, Housing and Urban Development in a dispute over a F piece of land situated at Kibosho in Moshi District. The background to this matter may be summarised very briefly as follows.

On 26th January, 1956, one Nderia s/o Nambuo granted a customary lease over the disputed land to one Sindato s/o Obo. The agreement for such lease which was in writing was produced in evidence G and forms part of the record. Sindato died but it is not clear from the evidence when exactly. However, upon Sindato's death Nderia stated that the land was returned to him by Sindato's personal representative, one Bernard. Then there was ample evidence that in 1969 Nderia devised the land to his son Peter, the present appellant, and that the appellant moved into possession. H Sindato's sons, Augustine and Bernard, opposed the appellant's entry and lodged a complaint in court. As a result the appellant was charged with forcible entry vide Kiwoso Primary Court Criminal Case No. 190/1969. However, the court, accepting the evidence as summarised above, acquitted the I appellant on the charge because he had entered
1984 TLR p67
KISANGA JA
A on the land which belonged to himself. The court then went to observe that Sindato's son might enter into an agreement with the appellant for a customary lease upon the usual payment of the customary dues called "masiro" provided the appellant was agreeable, but otherwise the appellant B was entitled to have his land and to compensate Sindato's son for the coffee which

Sindato had grown on that land. None of Sindato's sons ever approached the appellant for any such customary lease, and the appellant has continued to be in occupation of the land.
In another dimension, following the acquittal on the criminal charge, the appellant brought a suit for C malicious prosecution against Augustine and Bernard who were the complainants in the criminal case. He got judgment and was awarded damages against Bernard alone. Bernard did not pay the damages ordered, and so the appellant applied for execution of judgment to attach the coffee trees D on the disputed land which trees belonged to Bernard, by virtue of his having inherited them from his father, and for which the appellant had not yet paid compensation. It would seem that after the necessary procedures for a public auction were complied with no one turned up to bid for the E purchase of the coffee trees, and so the appellant, on application, was permitted to buy them in around April 1970. Then it would appear that on 18th May, 1970, the appellant, with the assistance of the police evicted a number of people, including one Thomas Lesio, who were occupying part of the disputed land, and in 1976 the said Thomas Lesio sued him before the Kilimanjaro Customary F Land Tribunal for wrongful eviction from such land. The said Tribunal, after recording the evidence declined to adjudicate on the matter on the ground that the matter was "res judicata" in that the appellant was lawfully in occupation of the disputed land pursuant to a court order. Thomas Lesio G and four others who were not identified appealed to the Minister for Lands, Housing and Urban Development. The Minister found that the land in question had been under customary lease for a long time, and that as a result the appellant willingly accepted Thomas Lesio and four others as his H tenants under the customary lease holding until when he evicted them on 18th May, 1970. He further found that the land, thus held under customary lease, was enfranchised by the Customary Leaseholds (Enfranchisement) Act No. 47 of 1968 which came into operation in Kilimanjaro Region on 10th October, 1969, so that the appellant could no longer regard Thomas Lesio and four others as I his tenants and evict them as he purported to do on 18th May, 1970. He accordingly reversed the decision of the Kilimanjaro Customary
1984 TLR p68
KISANGA JA
Land Tribunal and awarded title and possession of the disputed land to Thomas Lesio and four A others. Dissatisfied with that decision the appellant unsuccessfully applied to the High Court for an order of certiorari, and hence this appeal.
In the High Court the appellant/applicant was represented by Mr. Kinabo but in this Court he was represented by Mr. Lyasenga while the respondent Republic was represented by Mr. Mtingele. Mr. B Lyasenga filed a total of fifteen grounds of complaint, but we think that the whole appeal turns mainly on the issue of jurisdiction, although counsel did not raise it squarely. It would seem plain that a Customary Land Tribunal will have jurisdiction under the Customary Leaseholds C (Enfranchisement) Act if it is shown that the land forming the subject matter of the claim was held under customary land tenure at the time when the Act came into operation. If that test is satisfied then the proceedings before the Tribunal respecting such a matter and any appeal from there to the D Minister would be proper. If, however, the test is not satisfied then the trial proceedings before such Tribunal and any appeal from there to the Minister would be

null and void for want of jurisdiction. It is along these lines that we propose to approach this matter.

The Minister when giving his decision stated that this was a clear case of nyarubanja. However, it E becomes necessary for the court to be certain on this point because it goes to the issue of jurisdiction. For, when the Tribunal or the Minister assumes jurisdiction they should make sure that they do so on true and valid grounds. The evidence shows that the only customary lease created on F the land in question during the relevant period is that which Nderia, the appellant's father, granted to Sindato s/o Obo which lease was evidenced in writing on 26th January, 1956. Nderia in his evidence told the Tribunal that upon Sindato's death the land was returned to him by Sindato's son, G one Bernard, and there was overwhelming evidence that after such return of the land, Nderia donated it to his son, the appellant, some time in 1969; the appellant duly occupied the land and he has remained in occupation since.

There was no evidence whatsoever that either Nderia or his son, the appellant, subsequently granted anyone else any lease on this land. Indeed after the criminal case in which the appellant was H acquitted on the charge of forcible entry, the court observed that if the appellant was agreeable, he might grant a customary lease to Sindato's son upon payment of the customary dues called "masiro", but there is no evidence that he has granted any such tenancy to Sindato's son or anyone I at all.

1984 TLR p69

KISANGA JA

A There is yet another matter which seems to warrant consideration and that is this. It is not quite clear how Thomas Lesio is connected with the land in question. For, as has already been stated, the only lease that was created on the disputed land during the relevant period was the one that Nderia B granted to Sindato. But Thomas Lesio is not the son of Sindato. On the evidence Sindato's sons are Bernard, Lesiani, Henri, Agustin and Mathias. Thomas is only shown to be Sindato's nephew, but there is no evidence to suggest that such relationship enabled Thomas to claim, through inheritance, any tenancy granted to Sindato.

C And finally, there was evidence that when the land was leased to Sindato there was an obligation on the part of the leasee to pay customary dues known as "masiro" to the lessor. But there is no indication at all on the evidence that Thomas Lesio ever paid any such customary dues to anyone. D Indeed all along Thomas Lesio has consistently denied that there was any customary lease over the land in question. He makes it very clear that his claim is based on the allegation that the land descended to him through inheritance from his forefathers who held it in their own right and not under customary lease.

E The Minister was therefore wrong in finding that the land in question was enfranchised by the Customary Leaseholds (Enfranchisement) Act, because when the Act came into operation in Kilimanjaro Region on 10th October, 1969, there was no leasehold on the said land which the Act could enfranchise. As was shown earlier, the customary lease over this land terminated when F Bernard returned that land to Nderia and Nderia devised it to the appellant. This must have been before 10th October, 1969, because the judgment in the criminal case in which the appellant was G acquitted on the charge of forcible entry onto this very land after it was thus

devised to him is dated 9th June, 1969. Thus it becomes clear that the disputed land is not one to which the Customary Leaseholds (Enfranchisement) Act applies, and for that reason neither the Kilimanjaro Customary Land Tribunal nor the Minister had jurisdiction to adjudicate upon the dispute relating to such land.

H That, in our view, was sufficient to dispose of this appeal, but we consider it appropriate to refer at least to some of the grounds of appeal raised by counsel for the appellant. The Minister in dealing with the appeal, directed the taking of additional evidence which he duly took into account in I arriving at his decision. But the record further shows that such additional evidence was taken in the absence of the appellant, and Mr. Lyasenga submitted that this offended

1984 TLR p70

against the rules of natural justice. We think that this complaint is justified. The appellant ought to A have been afforded the opportunity to cross examine those who testified against his interest and, if necessary, to call his own additional witnesses.

Again it is noted that at the trial before the Tribunal there was only one complainant, namely B Thomas Lesio. But on appeal before the Minister there were five complainants, namely Thomas Lesio and four others who were not identified, and the Minister in his judgment accordingly awarded the title to Thomas Lesio and four others. This was obviously irregular for two main reasons. First, it was clearly wrong to join on appeal a person who was not a party at the trial. Secondly, it was a C serious error to award title and possession of the land to the four unidentified persons. Such award was practically meaningless. A proper decision must clearly identify the parties whose rights and obligations have been determined in the particular suit. D

Again the Minister in his decision ordered one Patris, the appellant's brother, to give vacant possession to Thomas Lesio and four others. But Patris was never a party at the trial. So that to the extent that the Minister's decision relates to Patris, that decision was equally objectionable on the same grounds as those given in the preceding paragraph. E

For all these reasons we are satisfied that the Minister's decision was a nullity, and that the learned High Court Judge ought to have held so. The appeal therefore succeeds. We accordingly grant the order for certiorari and set aside the Minister's decision. F

Appeal allowed.

1984 TLR p70

G

[zRPz]MACHAME KASKAZINI CORPORATION LIMITED (LAMBO ESTATE) v AIKAELI MBOWE 1984 TLR 70 (CA)

Court Court of Appeal of Tanzania - Arusha

Judge Mustafa JJA, Makame JJA and Kisanga JJA

October 1, 1984

CIVIL APPEAL 11 OF 1984 H

Flynote

Tort - Negligence - Vicarious liability - Unauthorised employee drives employer's vehicle -Scope of employment - Whether employer vicariously liable.
Tort - Costs - Appeal - Defect in preparation of record - Documents omitted - Party successful - Whether I entitled to all costs.
1984 TLR p71
MUSTAFA JA
-Headnote
A The respondent had sued the appellant and one Simon Alfayo Msomari jointly and severally in negligence for damage caused to his house and goods as well as for loss of earnings as a result of such damage. It was established as a fact that on 14th February 1977, Simon, after working hours B and without the authority or knowledge of the appellant, took and drove the vehicle to visit a relative. On his return at 8.15 p.m. he crashed into the respondent's building and was subsequently charged and convicted of reckless driving. The High Court found the appellant vicariously liable for C the tort committed by Simon, his employee, despite the fact that he was not authorised to drive the employer's vehicle at all.
Held: (i) It is a question of fact whether the unauthorised act by a servant is within, or outside the scope of his employment;
D (ii) Simon was not engaged in his employer's business at the material time; the visit to his relative had absolutely no connection with his employment, but was an independent act outside the scope of his employment; his driving the vehicle was an unauthorised act outside the scope of his employment.
E Per curiam: Owing to the defect in the preparation of the record, only half the costs incurred in the item for the preparation of the record of appeal should be awarded to the appellant.
Case Information
Appeal allowed.
F Cases referred to:
1. Marsh v Moores [1974] 2 K.B. 280
2. Canadian Pacific Railway v Lockhard [1942] A.C. 591
O. Sang'ka for the appellant
G P. Jonathan for the respondent.
[zJDz]Judgment
Mustafa, J.A.: read the following considered judgment of the court: The respondent Aikaeli Mbowe had sued the appellant Machame Kaskazini Corporation Ltd. and one Simon Alfayo Msomari jointly H and severally in the High Court in negligence for damage caused to the respondent's house and goods as well as for loss of earnings as a result of such damage. The High Court (Mwesiumo, J.) gave judgment in favour of the respondent as prayed and the appellant is appealing from that I decision. Simon Msomari has not appealed.
1984 TLR p72
MUSTAFA JA
The appellant is a limited liability company and is engaged in farming, among other activities, in the A Moshi District. Simon, at the material time, was an employee of the appellant as a field

officer. The appellant had provided Simon with a motor vehicle and a driver for his work. It was alleged by the appellant that Simon was not authorised to drive any motor vehicle of the appellant's; Simon had to B use a driver. Simon had no valid driving licence.

On the 14th February, 1977, at about 8.15 p.m. Simon drove a Landrover MS 7063 belonging to the appellant and was so negligent that he crashed it into the Bar & Restaurant building of the respondent at Machame, causing considerable damage to the structure. The respondent claimed C Shs. 60,000/= for the damage to the building, Shs. 40,000/= for articles and items of furniture and utensils destroyed in the building and for loss of income arising from the cessation of the business.

As far as Simon is concerned, there was clear evidence that he was negligent and was liable for D damages for his action. The appellant has submitted that, as employer, it was, in this case not vicariously liable for the tort of Simon. The appellant alleges that Simon, at the material time, was not acting in the course of his employment. The appellant also appeals against the award of damages E and the quantum.

The facts are not seriously in dispute. On the 14th February, 1977, Simon had finished work at 6.00 p.m., and the driver had parked the motor vehicle used by Simon in the garage. At 6.45 p.m. Simon without authority and unknown to the appellant, took and drove the vehicle to visit a relative, and F on his return at 8.15 p.m. he crashed into the respondent's building, and lost consciousness. Simon was subsequently charged and convicted of careless driving.

The trial judge frames five issues:

1. Whether Simon was employed by the appellant as a driver; G
2. Whether, if so, Simon was driving in the course of his duties;
3. Whether Simon was negligent;
4. Whether the appellant was vicariously liable;
5. What relief. H

The trial judge found that Simon was not employed as a driver, but as a field officer. He dealt with issues (2) and (3) together. He held that because (1) the appellant did not file a complaint to the police about conversion of the motor vehicle not amounting to theft against Simon but only I recovered from Simon the cost of repairs to

the vehicle (2) that as a field officer Simon was clothed with apparent authority to drive the appellant's motor vehicle, A and prima facie Simon was the vehicle owner's agent (3) the action of the appellant in safeguarding and storing the damage items of goods and (4) the appellant's earlier attempts at settlement, he was of the view that Simon was driving negligently and that the appellant was vicariously liable. We fail to understand how any of the above factors, B or a combination of them, on the facts of this case, could be a reason for imposing vicarious liability on the appellant.

As Lynskey, J. stated in Marsh v Moores [1949] 2 KB 208 at 215 (and both Lord Goddard, C.J. and Birkett, J. concurred): C

It is well settled law that a master is liable even for acts which he has not authorised provided they are so connected with the acts which he has authorised that they may rightly be regarded as modes, although improper modes, of doing them. On the other hand, if the unauthorised and wrongful act of the servant is not connected with the authorised act as to be a D mode of doing it but is an independent act, the master is not responsible, for in such a case, the servant is not acting in the course of his employment but has gone outside it.

And he referred to, among other authorities, Canadian Pacific Railway v Lockhart [1942]A.C. 591, 599. E

In Halsbury's Laws of England 4th Edition Vol. 16 paragraph 743 it is stated: F

In order to render the employer liable for the employee's act it is necessary to show that the employee, in doing the act which occasioned the injury, was acting in the course of his employment. An employer is not liable if the act which gave rise to the injury was an independent act unconnected with the employee's employment. If at the time when the injury took place, the G employee was engaged, not on his employer's business, but on his own, the relationship of employer and employee does not exist, and the employer is not therefore liable to third persons for the manner in which it is performed, since he is in the H position of a stranger. In this case it is immaterial whether the employee in using his employer's property with his employer's permission, as long as he is clearly acting on his own behalf, or whether he is using it surreptiously, and is therefore, as regards his employer, trespasser. I

1984 TLR p74

In such cases, it is a question of fact whether the unauthorised act by a servant is within, or outside A the scope of his employment.

Here it is clear that Simon was not engaged in his employer's business at the material time. He had already finished his work. He had taken the motor vehicle clearly on his own behalf, for a visit to his relative. That visit had absolutely no connection with his employment, but was an independent act B outside the scope of his employment. He was not even authorised to drive a motor vehicle. This was an unauthorised act outside the scope of his employment.

We agree with Mr. Sang'ka who appeared for the appellant that the appellant could not be vicariously liable for the negligence of Simon in the circumstances. C

Since we have found in favour of the appellant on the issue of vicarious liability, it is unnecessary to deal with the other grounds of appeal.

We allow the appeal, set aside the judgment and decree of the High Court in so far as it concerns the D appellant, and substitute therefor an order dismissing the claim against the appellant. We order that any decretal sum if paid, be returned to the appellant. We allow costs to the appellant both here and below. However, as Mr. Jonathan for the respondent has pointed out, relevant documents like E the ruling by Mwakibete, J. dated 22nd September, 1981, and the ruling by the Chief Justice dated 25th July, 1983, were not included in the record of appeal. Owing to this defect in the preparation of the record, we direct that only half the costs incurred in the item for the preparation of the record of appeal be awarded to the appellant. F

Appeal allowed.

1984 TLR p74

G

[zRPz]AUGUSTUS N. AND D.G. HALIKAS v M. K. MITHANI AND MEHBOOB YUSUFUALI MANJI 1984 TLR 74 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mustafa JJA

CIVIL APPLICATION 8 OF 1984 H

Flynote

Civil Practice and Procedure - Appeal - Notice of motion - Application for leave to appeal to Court of Appeal and leave to appeal out of time - Whether can be made to the Court of Appeal - R. 44 Court of I Appeal Rules G.N. 102 of 1979.

1984 TLR p75

MUSTAFA JJA

A The applicant had filed a notice of motion for an order that leave be granted to appeal to the Court of Appeal and to appeal out of time.

Held: It is clearly stated in rule 44 of the Court of Appeal Rules that whenever an application may be B made to the Court of Appeal or to the High Court, it shall in the first instance be made to the High Court.

Case Information

Application dismissed.

C No cases referred to:

G.M. Fimbo for the applicants.

M.A. Lakha for the respondents.

[zJDz]Judgment

D Mustafa, J.A.: gave the following ruling. The applicant, represented by Professor Fimbo, had filed a notice of motion moving a judge of this court for an order that;

1. leave may be granted to appeal to the Court for Appeal and

E 2. to appeal out of time, on grounds contained in an affidavit filed with the notice of motion.

It will be convenient to set out very briefly the background to this matter. The applicant, and another party, had filed an action in the Dar es Salaam Resident Magistrate's Court being R.M. Civil case No.78 of 1972 against the respondent and two other parties in respect of business premises on Plot F 26, Pugu Road, then owned by the applicant and his co-plaintiff. The claim so far as the respondent was concerned, was that the respondent had illegally entered and occupied the suit G premises, and was a trespasser, and should be evicted. The respondent's defence was that he had entered the suit premises with the consent and leave of the then lawful tenant, in order to manage the tenant's business while the latter was away overseas undergoing treatment. Incidentally the tenant was a relative of the respondent. The tenant died in December 1972. The deceased tenant's H wife came to Tanzania to wind up the deceased's

business and estate. In May 1973 the suit premises were acquired by the Registrar of Buildings under the Acquisition of Buildings Act and the respondent applied for and was taken on as a tenant of the suit premises by the Registrar. He then paid rent to the Registrar. In 1975 he was informed by the Registrar that the suit premises were I restored to the applicant who refused to accept the respondent as a tenant and refused to accent rent tendered.

1984 TLR p76

MUSTAFA JJA

The Resident Magistrate gave judgment in R.M. Civil Case No, 78 on 19th April, 1982 in favour of A the respondent. He found that the respondent was not a trespasser and had been a tenant of the Registrar of Buildings and that he was protected by the Rent Restriction Act. He refused to evict the respondent as he found that there was no evidence of alternative accommodation, that it was not B reasonable to make such an order, and that it was not shown that greater hardship would result if such an order was not made.

An appeal from that judgment by the applicant was made to the High Court, and the High Court (Mtenga, J.) upheld the findings of the Resident Magistrate and dismissed the appeal on 16th C November, 1982. The applicant is now seeking leave to appeal and of extension of time to appeal.

Mr. Lakha for the respondent raised a preliminary objection on the ground that the notice of motion was incompetent. He submitted that the main purpose of the notice of motion was to seek leave to D appeal, and such leave has not been refused by the High Court. The applicant had filed a notice in the High Court on 7th March, 1983 for leave to appeal, but the application was not proceeded with and was withdrawn on 13th December, 1983. He submitted that an application for leave to appeal must first go to the High Court, and he referred to Rule 44 of the Court of Appeal Rules. An E application for leave to appeal would be under the provisions of section 4(1)(c) of the Appellate Jurisdiction Act, and Rule 44 of the Court of Appeal Rules would be applicable.

He also submitted that in terms of Rule 55(2) (a) of the Court of Appeal Rules such an application F must come before a full court, not a single judge.

He also referred to Rule 43(2)(a) of the Court of Appeal Rules, and submitted that leave to appeal had to be made within 14 days of the decision, and the application was hopelessly out of time. G

In reply Professor Fimbo submitted that Rule 55(2)(a) of the of the Court of Appeal Rules only applies to an application for leave to appeal but here he has applied for two orders, one for leave to appeal and one for extension of time, and he contended that in these circumstances the provisions of Rule 44 would be inapplicable. He referred to Rule 8 of the Court of Appeal Rules, and submitted H that the Court should only look to that Rule for extension of time for sufficient reason and that Rule 8 overrides other Rules.

I confess I am unable to follow the reasoning of Professor Fimbo. An application for leave to appeal I is different in nature from an application for extension of time, though it is possible that some

1984 TLR p77

MUSTAFA JJA

A elements may sometimes overlap. It is clearly stated in Rule 44 that whenever an application may be made to this Court or to the High Court, it shall in the first instance be made to the High Court. An application for leave to appeal is such an application. In my view such an application has first to B be made to the High Court, and if not, it has to be rejected as incompetent.

On this ground I would reject the application for leave to appeal.

I will also briefly deal with the other matters raised in the preliminary objection argued before me. An C application for leave to appeal cannot be heard by a single judge, only by a full court. However, I would simply have referred or transferred the application to a full court, and would not have considered such an error as fatal. It is true that leave to appeal has to be applied for within 14 days D of a decision, but this delay is not necessarily fatal, if sufficient reason for the delay could be advanced.

That suffices for the preliminary objection.

I also heard arguments on the substance of the notice of motion, so that, if I am wrong on the preliminary objection my views on the merit are available.

E On the issue of leave to appeal, Professor Fimbo submitted that there was an arguable case, and that points of law were involved. Both counsel referred to the proposed memorandum of appeal filed with the notice of motion. I am of the view that all the grounds of appeal apart from ground 2 F concern matters of fact as found by the courts below, and involve no law. Ground 2 and possibly ground 4 would necessarily involve the production of fresh evidence and can be ignored. Professor Fimbo then submitted that there could be a point of law of public importance arising from the appeal. G He conceded that such a point has not been raised in the proposed memorandum of appeal, nor was it raised in the courts below. The point, he submitted was this: "What are the rights of tenants of the Registrar of Buildings after the premises have been restored to the previous owners". I am not convinced that such an issue could arise from the hearing of this appeal judging from the brief H background that I have given at the beginning of this ruling. The issue before the courts below was basically that of trespass, not the incidents attaching to tenancies. If such an issue is to be decided, it must await a suitable opportunity, assuming that a tenancy granted by the Registrar of Buildings I could have incidents different from those of a tenancy granted by an ordinary owner.

1984 TLR p78

MUSTAFA JJA

The next point of law raised by Professor Fimbo was that the 1st appellate judge had not held that A the applicant was entitled to rent from the respondent. Mr. Lakha pointed out that the trial magistrate had ordered payment of rent by the respondent to the applicant, and that order remains, as no cross-appeal has been filed. I am unable to understand Professor Fimbo's submission on this point. B

I am not satisfied that any legal issue or point is involved and I would have refused leave.

As regards extension of time Professor Fimbo submitted that the delay was due (1) to the fault of the former advocate retained by the applicant, that is, Mr. Mahatane and (2) illness of the applicant. He C conceded that the last date for filing the appeal was 20th March, 1983. An

application for leave to appeal was made on 7th March, 1983 but he alleged that this application for leave to appeal was withdrawn on 13th December, 1983, by Mr. Mahatane without the knowledge or instruction of the D applicant. He alleged that the applicant came to know of this withdrawal by Mr. Mahatane's letter to the applicant dated 2nd July, 1984.

However, it is clear that a fresh suit was filed by Mr. Mahatane on behalf of the applicant on 14th E December, 1983, a day following the withdrawal of the application for leave to appeal. The plaint was signed by the applicant. The fresh suit was in respect of the same suit premises, and referred to the respondent as having been declared a tenant in R.M. Civil case No, 78 of 1982, and seeking the F respondent's eviction, on the ground among others that he had sublet without permission.

The inference, to my mind, was that the appeal was being deliberately abandoned and fresh action was being taken to evict the respondent. Mr. Lakha stated that this fresh suit R.M. Civil Case No. G 217 of 1983, was dismissed for want of prosecution on 14th September, 1984. The letter of 2nd July, 1984, written by Mr. Mahatane referred only to R.M. Civil Case No, 217 of 1983, and nothing in it concerned the application for leave to appeal. In the circumstances I do not believe that Mr. Mahatane had withdrawn the application for leave to appeal without the authority or knowledge of H the applicant, bearing in mind that the application to the High Court for leave to appeal dated 7th March, 1983, was filed by the applicant himself before Mr Mahatane was engaged as counsel. If Mr. Mahatane had acted as alleged, then this conduct would have been improper, not negligent, and I that would be a matter between the applicant and Mr. Mahatane. It would seem to me that the notice

A of motion filed on 10th October, 1984, after the dismissal of the fresh suit R.M. Civil Case No, 217 of 1983 on 14th September, 1984 could have been an attempt to revive an appeal which had become moribund.

B As to illness, Professor Fimbo referred to a report dated 29th August, 1984, written by a Dr. Wilson of London concerning the applicant. That letter states inter alia "this gentleman on his visit to England from Tanzania while he was here visiting his daughter..." It would seem that while on such a visit the applicant consulted Dr. Wilson and other doctors in London. Admittedly, the C applicant had suffered injuries and illness, but he was about 18 months out of time, he was capable of going on a visit to his daughter in England, and the illnesses occurred from June 1984 onward.

I do not think that he was effectively prevented by illness from filing his appeal for a period of 11/2 D years. I would not have found that the applicant had advanced sufficient reason to extend the time in terms of Rule 8 of the Court of Appeal Rules.

I dismiss the application with costs.

E Application dismissed.

F

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

August 5, [1985]
(PC) CRIMINAL APPEAL 83 OF 1984
Flynote
G Criminal Practice and Procedure - Limitation - Period of Limitation - Purpose of -Whether right of appeal can be indefinite - Magistrates' Courts Act, 1984, s.25(1).
Criminal Practice and Procedure - Appearance -Right to appear by accused - Duty of court - Exceptions to H the rule - Effect of such irregularity - Magistrates' Courts Act 1984 ss.34 and 37(2).
Evidence - Confessions - Involuntary confessions - Presence of further relevant fact proving a conduct -Whether admissible - Rules of Evidence in Primary courts, G.N. No. 22/1964 Rule 9 (2) (b).
I Statutory Interpretation - "Failure of Justice'' - Meaning of -Magistrates' Courts Act 1984 s. 37(2).
1984 TLR p80
-Headnote
The appellants were convicted by the Primary Court of robbery with violence. They appealed to the A District Court which upheld the conviction and granted them an open right of appeal to the High Court. In further appeal to the High Court they contended that they were denied justice because of non-appearance caused by lack of notice of hearing by the District Court. They further alleged that B the District Court had accepted doubtful confessions.
Held: (i) The right of appeal cannot be open; granting liberty of an indefinite period of appeal is contrary to s. 25 (1) of the Magistrates' courts Act 1984 which prescribed a period of 30 days; and C defeats the purpose of limitation period which is to avoid chaos in the business of the courts;

(ii) an appellant whether in custody or not, is entitled to be present at the hearing of his appeal, and the court must cause notice of the time and place at which the appeal will be heard to be D given to the appellant or to his advocate;

(iii) exceptions to the notice rule (ii) above can only be made in two circumstances;

(a) (as to the appellant) where an appellant has not indicated in his petition that he wishes to be present; and E

(b) (as to the advocate) where the petition is not signed by the advocate or the court is not informed that he is instructed to appear at the hearing;

(iv) where such a procedural irregularity is proved the decision of such court cannot be F reversed or altered on appeal solely for such error, omission or irregularity unless failure of justice has been occasioned by such irregularity, error or omission;

(v) failure of justice does not mean the conviction of an accused or the dismissal of his appeal; rather, it means failure to give the accused or the appellant a fair and just hearing (by giving G due consideration to the merits of the case);

(vi) although the appellants' confessions were ordinarily inadmissible, the fact that there was an unusual state of affairs concerning the second appellant was relevant and admissible as it tended to prove a conduct from which the second appellant's guilt could be inferred; in such context it does H not matter if illegal means are used in getting at the fact.

Case Information

Appeal dismissed. I

1984 TLR p81

LUGAKINGIRA J

A Cases referred to:

1. Kuruma Son of Kaniu v R. [1955] 1 All E.R. 236, or (1954) 21EACA 242.

D.C. Mbezi for the appellants.

B B. Mwambe for the Republic.

[zJDz]Judgment

Lugakingira, J.: The appellants Joram Mkanghule and Meshack Chilimbe, to whom I shall hereinafter refer as the first and second appellant respectively, were before the Primary Court at C Makang'wa, convicted of robbery with violence and sentenced to seven years' imprisonment each. They unsuccessfully appealed to the District Court, Dodoma, and further appealed.

Mr. D.C. Mbezi appeared for the appellants before this Court and raised a preliminary complaint. It is D an important one and I desire to give it consideration. The appellants had engaged him to file and prosecute their appeal before the District Court. Mr. Mbezi duly filed the appeal on 6th March 1984. The appeal came up for hearing on 1st August, 1984, but neither he nor the appellants were served E with the notice of hearing. Mr. Mbezi informed me that the appeal did not even appear on the court's cause list. However, the proceedings of that date appear as follows.

Cormm: D.H. Lukindo, D.M.

Appellants absent.

F Mr. Mbezi for the Appellants absent.

Memo of appeal together with lower court record perused.

G Sgd.

D.H. Lukindo, D.M. 1/8/84

The court's judgment follows immediately, and is dated the same day, ending with: "Right of appeal to High Court is open."

H Mr. Mbezi's complaint is justified. First of all, the right of appeal cannot be open as such. To grant such liberty, in effect an indefinite period of appeal, is contrary to s.25(1) of the Magistrates' courts Act, 1984 which prescribes a period of thirty days. Any period of limitation has its purpose, the most obvious being to avoid chaos in the business of the courts. It is therefore improper, indeed I irregular, to behave as if limitation did not exist or matter. But I need to say

more on this subject since the appellants were not prejudiced by, but stood to gain from, the A indifference of the appellate magistrate.
Secondly, the proceedings cited above are not free from ambiguity. They could be construed to imply that the appellants and/or Mr. Mbezi were absent on their election. I have perused the entire record and it is evident that no notice of hearing was sent out. It may also be true, as claimed by Mr. B Mbezi, that the matter did not even appear on the cause list. It seems that some magistrates are tempted to regard as trivial appeals from primary courts and to dispose of them as a sort of nuisance. Unfortunately, that attitude is wrong as it overlooks the legitimate anxieties of the parties to the case C and, more seriously, it is not available for a court to substitute its attitude for the express provisions of the law. Appearance at the hearing of criminal appeals from Primary Courts is governed by the provisions of s.34 of the Act aforesaid. Generally, an appellant, whether in custody or not, is entitled to be present at the hearing of his appeal, and the court is enjoined to cause notice D of the time and place at which the appeal will be heard to be given to him or to his advocate. There are two exceptions to this rule: Notice need not be given to an appellant who has not indicated in his petition that he wishes to be present; nor need it be given to an advocate unless the petition is E signed by him or the court is otherwise informed that he is instructed to appear at the hearing. In the instant case the petition of appeal was signed and filed by Mr. Mbezi. In view of the provisions aforesaid, I am satisfied that the lower court proceeded irregularly in failing to notify Mr. Mbezi or the appellants of the date of hearing. F
It now falls to consider the effect of this irregularity. Section 37(2) of the Act is relevant in this respect and, in so far as this case is concerned, it provides that the decision of a District Court shall not be reversed or altered on appeal on account of any error, omission or irregularity in any process G unless such error, omission or irregularity has in fact occasioned a failure of justice. To my understanding, a failure of justice does not mean the conviction of an accused or the dismissal of his appeal; rather, it means failure to give the accused or the appellant a fair and just hearing. I am not prepared to say in this case that there was such a failure of justice. The appellants were in fact given H a fair and just hearing notwithstanding their absence and that of their advocate. As indicated in the proceedings of 1st August, the petition of appeal was perused. Even in his judgment the appellate magistrate further stated that he did not agree with the grounds of appeal, an indication I that he gave them consideration. It follows, in my view, that there was a

A fair hearing and the decision of the lower court cannot be disturbed on account of the irregularity. The appeal therefore stands or falls on its merits.
Two matters were taken before me: the identification of the robbers and the reception of doubtful B confessions. Mr. Mbezi, with Mr. Mwambe's support, submitted that there was unreliable evidence of identification and that otherwise the appellants were convicted and their

first appeal dismissed on the basis of involuntary confessions. In view of these arguments, I propose to recount the facts at some length.

C The complainant was a cattle dealer. On 5th August, 1983, he went to Nkwenda village the appellants' home place, to purchase cattle and had a pouch containing 20,000/-. Being a stranger in the area, he picked up a friend (PW2) who was a resident of Nkwenda. Around 4 p.m. they came to a D pombe shop where they found both appellants. They told the appellant of their desire and appellant directed them to his home which PW2 knew. They hung around until between 5 and 6 p.m. when PW 2 led the way to the second appellant's home. They were there shown four cattle by the E second appellant's brother but since it was getting late, the second appellant's father, one Simatya, told them to make payment the following day. The complainant and PW 2 turned to go and it was then between 7 and 7.30 p.m. in their estimation. A short distance from Simatya's homestead, PW halted to answer a call of nature. Shortly, the complainant was accosted by two people whom he F identified as the appellants. They asked him where his colleagues were. He duly informed them. In that instant he was attacked and felled and relieved of his pouch. He raised alarms and PW 2 arrived in time to see the appellants flee. More alarms were raised but nobody came to help except women G who were peeping and retreating into their homes. They went to report to the village secretary but he could not help saying that the appellants were fearsome characters. He directed them to the Ward Secretary. The following day the second accused was arrested at his home. The first appellant was H reported to have left for Nkulabi village the previous night. He was followed there and arrested. It seems that upon their arrest the appellants were given a beating and this led to their making written confessions. The second appellant went further. He led the way to his house and indicated a spot under his door saying he had kept the money there. The soil was removed but no money was found. I The appellants were subsequently charged.

1984 TLR p84

LUGAKINGIRA J

I will start with the question of identification. It occurs to me that Mr. Mbezi's argument was based A on a misapprehension of the facts. He thought, and argued, that the complainant and PW 2 met and parted with the appellants at 4 p.m. when in fact they parted after 5 p.m. The four were therefore together at the pombe shop for more than an hour. It is significant that the appellants themselves B denied meeting the complainant or PW 2 at all. Apart from the familiarity arising from the pombe shop meeting, it is equally evident that complainant had ample opportunity to see and identify the appellants at the time of the robbery for he saw them arrive, had a conversation with them, and could even make out who did what. He said: C

Basi tulipozunguka nyumba ya yule Simatya mwenzangu akasema nimsubiri ajisaidie kwanza. Wakati ninamsubiri mwenzangu, washtakiwa hawa wakaja pale nilipokuwa nimesimama. Kitu cha kwanza D mshtakiwa wa pili aliniuliza kuwa mwenzako yuko wapi. Baada ya kumjibu yupo anajisaidia nikakuta nimepigwa kichwa na ngumi kwenye shingo. Akanizoa na kunidondosha chini. Ndipo nikaanza kupiga kelele ... Mshtakiwa wa kwanza alikuwa akinitazama, huku ameshika miguu nikiwa nimedondoshwa chini. E Wakati ule napiga yowe mshtakiwa wa pili alikuwa anachukua pochi yangu iliyokuwa na fedha.

The time of the incident was indeed given as 7.30 p.m. but that was the guess of peasants which F should not be taken seriously. Hence, if in fact the complainant and PW2 left Simatya's at 7.00 p.m. as the complainant stated, and the robbery took place just behind Simatya's house, according to both the complainant and PW2, there could not have elapsed an interval of half an hour. It is G moreover evident that despite the so-called 7.30 p.m., and the use of the term "usiku", it was still possible at the time easily to make out a familiar person. In cross-examination by the first appellant, the complainant further said:

Niliwatambua washtakiwa hawa kwa sababu nilionana nao kuanzia mchana... Ilikuwa saa 1.30 usiku, H ilikuwa rahisi sana kumtambua mshtakiwa. I

1984 TLR p85

LUGAKINGIRA J

A Even PW2 arrived in good time to see the appellants, although both counsel were again inclined to see the evidence differently. According to the complainant,

Ndipo nikaanza kupiga kelele mwenzangu akasikia na kuja anakimbia. Washtakiwa walipomuona B wakakimbia.

According to PW2 himself, who also knew the appellants from long before,

C Mara nikasikia mlalamikaji anapiga kelele. Nilienda huku nakimbia nikakuta mlalamikaji kaangushwa chini na washtakiwa hawa. Nilipofika kutaka kuwashika walikimbia. Wakati wanakimbia nilimuona D mshitakiwa ameshika mkononi mkoba wa mlalamikaji ... Tuliwafukuza lakini hatukuweza kuwashika.

From this evidence, which the lower courts believed, I am equally satisfied that the appellants were properly and perfectly identified. The familiarity and the circumstances prevailing gave no room for E mistaken identity. As pointed out by the learned trial magistrate the behaviour of the first appellant was also significant. For no apparent reason he abandoned his home for Nkulabi at 3 a.m. the same night. He could only tell the trial court that he was drinking pombe at Nkulabi but, certainly, that was F not a calling that would have necessitated such an unusual and risky journey. Mr. Mbezi's other observation on identification was on what he called the arrest of the second appellant's brother. He thought that this indicated uncertainty on the part of the complainant and PW2. In fact, this was G another misdirection on the evidence. The man who was picked up was Donald Nkanghule (DW1), the first appellant's brother, not Simon Chilimbe (DW2), the second appellant's brother, and the former was taken along to disclose the whereabouts of his brother. When he did so, he was released.

H There was then the issue of confessions. If what the appellants alleged was true, the confessions were of course inadmissible. However, I am unable to find that their reception prejudiced the appellants. A careful reading of the lower courts' judgments shows that reference to the confessions and the circumstances in which they were obtained are matters arising in the summaries of evidence. I But in arriving at their decisions both courts carefully confined themselves to identification. I therefore see no merit in the argument

1984 TLR p86

which, in any case, is irrelevant once it is found, as it, was, that there was accurate identification. But A one thing merits attention. Even though the confessions as such might have been

inadmissible, the fact that there was an unusual state of affairs in connection with the second appellant was relevant and admissible under rule 9(2)(b) of the Rules of Evidence in Primary Courts, G.N. No. 22 of 1964, as it tended to prove a conduct from which the second appellant's guilt could be inferred. It B matters not, in that context, that illegal means are used in getting at the fact: see also Kuruma Son of Kaniu v R.[1955] 1 All ER. 236; (1954), 21 EACA 242.

On the whole, with respect to both learned counsel, there is no doubt about the appellants' guilt and C the propriety of their conviction. The appeal is accordingly dismissed. There is only one matter to put right. The trial court had no power whatsoever to order the attachment of the appellants' parents' cattle or money to compensate the complainant. The obligation to furnish compensation is D solely the appellants' and it's none of the court's business that they have no property of their own.

Appeal dismissed.

1984 TLR p86

E

[zRPz]MATHIAS TIMOTHY v REPUBLIC 1984 TLR 86 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

August 7, 1985

F CRIMINAL APPEAL 83 of 1984

Flynote

Evidence - Witnesses - Witness lying on material particular - Danger of believing same witness on other particulars - Whether testimony suspect or discredited. G

-Headnote

The appellant together with another person had been convicted of theft from a Mill. The rest of the accused had been locked inside the Mill while working and it was proved nothing could be disposed of from the Mill, neither could they come out until the following morning. The main witness had lied H on a material particular of the theft, and the trial magistrate, though aware of the readiness of the witness to lie, never warned himself of the danger of believing the same witness on other particulars. On appeal it was considered whether such palpable falsehood had any effect on the testimony of I witness.

1984 TLR p87

LUGAKINGIRA J

A Held: (i) In testimony of a witness, where the issue is one of false evidence, the falsehood has to be considered in weighing the evidence as a whole; and where the falsehood is glaring and fundamental its effect is utterly to destroy confidence in the witness altogether, unless there is other B independent evidence to corroborate the witness.

Case Information

Appeal allowed.

Cases referred to:

C 1. Musa v Republic [1970] HCD n. 278.

[zJDz]Judgment

Lugakingira, J.: Originally, this case involved fifteen persons, all employees of the National Milling Corporation in Dodoma. The appellant, Mathias Timothy, was a night watchman with the D Corporation and was the third accused at the trial. The charge consisted of two counts. The first count alleged stealing by servant and involved the first accused only.The second count alleged simple theft and involved the rest of the accused, that is, the second to fifteenth accused. Both E counts related to the same subject matter, that is, theft of 13 bags of sembe flour, two bags of maize and 18 empty bags, all the property of the Corporation and worth 1,569/20. All the accused were acquitted except the appellant and the second accused, one Hassan Juma, who was also a F watchman. Upon conviction these accused were sentenced to three years' imprisonment each. The second accused has not appealed.

It was common ground that on the night of 15 June, 1984 the appellant and the second accused were on duty outside the Corporation's Mill. The rest of the accused were inside the mill where milling G was in progress, and had actually been locked there from outside since 6 p.m. The key to the lock was kept by PW4 at his residence. That was the practice, its inconvenience and implications notwithstanding, and was designed to prevent thefts from the Mill. During the night, therefore, no one could enter or come out of the mill.

H There was information of rampant thefts at the Mill. On that night therefore, No.B.4728/ D/Sgt. John (PW1) and two other unnamed police officers were detailed to keep watch on the premises with a view to foiling any theft. It was alleged by PW3 that around 2.45 a.m. he and his colleagues saw I people throwing bags of sembe, etc. "from inside the milling machine" over the fence surrounding the Mill. He further alleged that they also saw the appellant and the

second accused collect those items and take them into a nearby hut which was occupied by PW1. A For no apparent reason no arrest was made then. Instead we are made to believe that when this process was over DSgt. John and his colleagues proceeded to the hut and confronted PW1 over the bags of flour inside and empty bags outside his hut. After PW1 was given a beating, the modus B operandi by many of our officers, he disclosed that the second accused had earlier approached him with a request to keep his "luggage" there. The second accused was sought out and arrested. The appellant, who was not feeling well, was then resting inside a hut within the enclosure. He was similarly followed, dragged out and beaten and told he was a thief. The following morning the rest of C the accused came out of the Mill after it was opened by PW4. They were promptly arrested and all the accused were charged as aforesaid. The appellant denied any knowledge of the theft.

The trial magistrate was incredulous about the evidence of Dsgt. John and said (in his typical style): D

The prosecution evidence is not clear enough to satisfy me that the police exactly saw the packages thrown from inside the concrete fence. The packages are 50kg, and it is hardly to be

believed that it can be thrown E out from inside by a person without a ladder hence it have been proved that there was no any kind of ladder around the area.
He then went on to say, "I suspect that the maize flour packages were brought outside in another F way by the guards or other persons before the ambush policeman's arrival." In the upshot he believed D/Sgt. John that "he detected the second accused and third accused persons carrying the packages outside the milling section fence to the hut adjacent to the NMC compound." G
The only issue in this appeal is whether it was safe to believe D/Sgt. John. That the witness lied on a material particular is beyond question. No one at that time, not even with a ladder, could have disposed of anything from the Mill, for those inside were under lock and key and were not let out until the following morning. The trial magistrate, although conscious of D/Sgt. John's readiness to H lie, never warned himself of the danger of believing the same witness on other particulars. In the case of Musa v R [1970] HCD No. 278, it was held that the rejection of part of the testimony of a witness does not necessarily make his whole testimony suspect or discredited. In that case, I however, the issue was one of discrepancies and
1984 TLR p89
A contradictions as opposed to a palpable falsehood as obtains in the instant case. In my view, where the issue is one of false evidence, the falsehood has to be considered in weighing the evidence as a whole; and where the falsehood is glaring and fundamental its effect is utterly to B destroy confidence in the witness altogether, unless there is other independent evidence to corroborate the witness.
In the case before me the falsehood was neither trivial nor immaterial. It formed the very basis of stealing from the Mill. If it is held, as it correctly was, that D/Sgt. John never saw anything thrown C from the Mill, it must necessarily throw doubt on the whole account of the incident, including the allegation of sighting the appellant removing the bags into PW1's hut. There was no other evidence to corroborate D/Sgt. John's testimony. None of the other two officers was called to testify; indeed their very identities remain unknown. Even PW1 never mentioned the appellant in any connection. D In these circumstances, I am not prepared to say that if the trial magistrate had appreciated the effect of D/Sgt. John's falsehood he must have necessarily believed him on the removal of the bags and have convicted the appellant as he did. Although it is not necessary to speculate, it is nevertheless not unreasonable to say that the witness discovered the loot in his rounds, for PW1's E hut was just outside the fence, and it seems to be the information extracted from PW1 that led the witness to make up a story. I consider it most unsafe to sustain the appellants's conviction which was in fact not supported by the Republic.
F I allow the appeal, quash the conviction and sentence and order the appellant's release from custody unless he is further lawfully held.
Appeal allowed.
1984 TLR p89
G
[zRPz]REPUBLIC v MABULA MIHAMBO 1984 TLR 89 (HC)

Court High Court of Tanzania - Mwanza

Judge Katiti J

April 30, 1985

H CRIMINAL REVISION 4 OF 1984

Flynote

Criminal Law - Regulation of Prices Act 1973, s. 8(1) - Selling goods above aggregated price - Whether an offence.

I Statutory Interpretation - Aggregate price and Maximum price - Whether same -Meaning of - Regulation of Prices Act 1973, ss.20 and 26.

1984 TLR p90

KATITI J

Statutory Interpretation - Delegated legislation - Construction of- Where doubts arise, benefit of doubt A should be given to the accused.

-Headnote

The accused had been convicted on his own plea of guilty to a charge of selling fish exceeding aggregated maximum price contrary to ss. 20 and 26 of the Regulation of Prices Act 1973. On revision B it was considered whether there was any offence disclosed under the provisions of sections 20 and 26 of the said Act.

Held: (i) Selling goods above aggregated price is not an offence under the Regulation of Prices Act C 1973;

(ii) the powers of the Assistant Price Commissioner is to determine price structures by fixing maximum prices for sale of goods or services, and not aggregate prices;

(iii) aggregate is not the same as maximum and the statutory definition "maximum price" does D not necessarily mean "aggregate price";

(iv) where the construction of a delegated legislation results in ambiguities, or absurdities, or give rise to oppressive doubtful results, the benefit of doubt should always be given to the accused. E

Case Information

Conviction quashed

No case referred to

[zJDz]Judgment

Katiti, J.: The accused person Mabula Mihambo, stood before Bunda District Court, charged under F the provisions of section 20 and 25 of 26 of the Regulations of Prices Act 1973. The charge that provoked curiosity, and hence the revision, was strangely worded, as follows: G

(1) OFFENCE, SECTION AND LAW:

Selling/fish exceeding aggregated maximum Price/s. 20 and 26 of the Price Regulation Act No. 19 of 1973. H

(2) PARTICULARS OF OFFENCE

Mabula Mihambo charged on 3rd day of January 1984 at about 13.30 hours at Bunda Market, within the District of Bunda; Mara Region, did sell fishes (satu) at Shs. 180/= whereas the actual price is Shs. 90/= thus exceeding aggregated maximum price. I

1984 TLR p91

KATITI J

A The above charge, did arise from the price structures, determined, or fixed by the Bunda District Assistant Price Commissioner; under the empowering provisions of Section 7. 9 and 10 of the Regulation of Prices Act 1973, hereafter to be referred to as the Act. The accused having had the B above charge read to him, he is recorded to have pleaded guilty, automatically thereby earning a conviction on his own plea of guilty. He was sentenced to a fine of Shs. 6,500/- or one year imprisonment.

The accused has not appealed. All the same, what did cause uneasiness is the wording, or form of C the charge, and whether any offence under the provisions of sections 20 and 26 of the Act is disclosed. I shall first deal with the aspect of the wording of the charge, whose nagging influence is tangible. Both the statement of offence, and the particulars of offence do aver, that the accused did D sell fish above the aggregated price, and therefore offended the charged sections. Having anxiously considered the charge I fail to imagine what an aggregate price in this case, meant to the accused person, who allegedly sold the commodity, or commodities concerned. Further, while it is not rhetoric, but a factual legal situation, that the Assistant Price Commissioner has power to E determine price structures, in so doing, he has to fix maximum prices for sale of goods, or services (see section 8(1) of the Act), and not aggregate prices. For aggregate priced goods, may not necessarily have the same meaning, as statutorily assigned to, the price-controlled goods, in as F much as, "maximum price", as ordinarily what is aggregated cannot be taken as the maximum. I would therefore, easily conclude that selling goods above aggregated price, is not an offence known to the Regulation of Prices Act 1973.

I was minded to think, that despite the problem of wording, or form above shown in the charge, the G accused must have had substance clear, till I saw and read, the Bunda District Assistant Price Commissioner's Price List Notice Ref. No. BS/10/1/Vol. 14 of 21st June, 1983. In so far as the price is material for purposes in this case, the prices of "ngege" otherwise known as "satu", were fixed as follows:

H (1) Ngege -

(a) Mkubwa (Kigoma) Shs. 15.00

(b) Kawaida Shs. 10.00

(c) Ndogo Shs. 5.0

I With due respect, these swahili terms "mkubwa", "kawaida" and "ndogo" are only expressive of relative sizes, and are not absolute

1984 TLR p92

KATITI J

standard measures, for what is "mkubwa" or "ndogo" or "kawaida" to one, may qualify for a A different size, in the eyes and estimate of another, and in price terms qualify for a different price. For instance, if "ngege" mkubwa (Kigoma) is to sell at Shs. 15/= each, and as to who is

determining mkubwa is anybody's guess, one wonders, how "ngege" "mkubwa sana" would sell, and where the B "ngege" is "Mkubwa sana" in the view of the businessman, is the said businessman not entitled to determine his own price, in any case who has the competence to say it is not "mkubwa sana", but only, "mkubwa"? Is it the police, or the complainant, and who decides, when the accused say it is C "mkubwa sana", and by what standard of measure. In the circumstances of this case, these are pertinent, though blind questions. But we had imperial weights and measures, and now we have a metric system, and why these standard measures were not applied beats my mind.

I am posing the above without oblivion, that the Assistant Price Commissioner acted under D delegated powers, to determine price structures under the provisions already above shown. Further I am not under the influence of oblivion, to the fact that, the over-riding principle in the interpretation of legislation, made under power conferred by statute, is that it should be construed in the light of E the enabling statue generally, and in particular so as to be consistent with the substantive provisions, and it is the duty of courts to give a fair and full effect to the same. But where the construction of such legislation results in ambiguities, or absurdities, or give rise to oppressive F doubtful results, the benefit of doubt should always be given to the accused. In this case, as selling above aggregate price is not an offence known to the Regulation of Prices Act 1973, and as otherwise, the measures are of doubtful precision, and left to be subjectively based, G I am satisfied the conviction entered against the accused is very unsafe. The conviction is hereby quashed, and fine order set aside. The fine, or any amount thereof if paid, to be refunded.

Conviction quashed. H

1984 TLR p93

A

[zRPz]NUHU SELEMANI v REPUBLIC 1984 TLR 93 (CA)

Court Court of Appeal of Tanzania - Tanga

Judge Mustafa JJA, Makame JJA and Kisanga JJA

October 17, 1984

B CRIMINAL APPEAL 5 OF 1984

Flynote

Evidence - Circumstantial evidence - Voice identification by itself in a murder case - Whether C sufficient/reliable.

Evidence - Circumstantial evidence - Exhibit seized in appellant's absence - Neither shown to appellant nor asked of it - Whether sufficient evidence to link it to appellant.

-Headnote

The appellant had been convicted of murder based on purely circumstantial evidence. The first, identification of the voice of the appellant on what he had said to the deceased; and the second D identification of blood stained shirt seized in the appellant's house. On appeal it was

considered whether the circumstantial evidence in the case did irresistibly lead to the inevitable inference that it was the appellant who killed the deceased.

E Held: (i) It is notorious that voice identification by itself is not very reliable;

(ii) the evidence by the prosecution to link the shirt to the appellant was insufficient.

F Appeal allowed.

No case referred to.

S. Mwale for the Republic

[zJDz]Judgment

G Mustafa, J.A. read the following considered judgment of the court: The appellant was convicted of murder on purely circumstantial evidence. On the material day the appellant and the deceased had H a little quarrel in a pombe shop, but the quarrel was settled more or less amicably, and each went his separate way. This was according to the evidence of P.W. 3 Maliki Bakari who was a crucial witness for the prosecution. According to P.W. 3, later that evening, he was in his shop serving customers, and at about 8.30 p.m. just before he was to close, the deceased appeared and wanted to I purchase some cigarettes. There was a light in the shop. As he was taking out some cigarettes to sell to the deceased, he

heard a voice saying "Aisay, umenitoroka. Ulifikiri sintakuona." P.W. 3 stated that he could A recognize the voice as that of the appellant whom he knew well. Immediately on hearing that statement, the deceased ran off, without his cigarettes. P.W. 3 thereupon assumed that the appellant had run off after the deceased.

Later on the same night, an alarm was raised, and P.W. 3 discovered that the dead body of the B deceased was lying on the road some distance from his shop.

P.W. 3 told the assembled villagers of what he had seen and heard and suggested that the killer must have been the appellant, and a search was made for the appellant. C

P.W. 1 and P.W. 2, both police officers, arrived at the scene. P.W.1 went to the house of the appellant. The appellant was absent, and PW.1 searched the house. He found a shirt which appeared to have blood stains. He seized it. He asked the appellant's wife who was present to whom did the shirt belong. She said it was the appellant's. Later blood samples of the appellant and the deceased D were taken, and they, together with the shirt, were sent to a Government Chemist for analysis. It was discovered that the blood of the deceased and the appellant and the blood stains on the shirt all belonged to the same group. E

On their way back to the police station from the village, the police vehicle in which were P.W. 1 and other police officers and village officials was stopped by the appellant who gave himself up stating that he had heard that the villagers had implicated him in the killing, but that he had not done so, and he was therefore surrendering himself to the Police for proper investigation, presumably. F

The prosecution case depends on two important circumstances. The first would be the voice identification of what the appellant was alleged to have said, as a result of which the deceased suddenly ran away. In view of the fact that the earlier dispute between the appellant and the G

deceased was settled amicably, it is difficult to understand why the appellant should have said "you ran away from me", or "that I could not trace you". Also it is notorious that voice identification by itself is not very reliable.
As regards the shirt with blood stains, it is difficult to conclude that it must have been the H appellant's. The shirt was seized in the appellant's absence, and the wife said it was the appellant's shirt, also in his absence. Thereafter it was never shown to the appellant, nor was he asked if the shirt was his. There was insufficient evidence to link the shirt to the appellant on the evidence adduced by the I
1984 TLR p95
A prosecution. It was also not established whether the blood stains on the shirt were extensive or otherwise.
In our view the circumstantial evidence in this case does not irresistibly lead to the inevitable inference that it was the appellant and nobody else who had killed the deceased, in view of the B lacunae in the evidence adduced by the prosecution.
Mr. Mwale for the Republic eventually conceded that he is unable to support the conviction.
In the result we allow the appeal, quash the conviction, set aside the sentence of death imposed on C the appellant, and order that he be released forthwith unless otherwise lawfully detained.
Appeal allowed.
1984 TLR p95
D
[zRPz]REPUBLIC. v MOHAMED SHEDAFFA AND THREE OTHERS 1984 TLR 95 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

November 18, 1985
E CRIMINAL SESSIONS CASE 10 OF 1983
Flynote
Evidence - Dying declaration-Accused's failure to reply to deceased's statement naming him as assailant - F Whether amounts to acknowledgement of the truth of the dying declaration.
Evidence - Dying declaration - Prerequisites before it can have evidential value.
G Evidence - Dying declaration - Repeated several times - Whether proof of the truth of its content.
-Headnote
The accused persons were charged with murder. The evidence consisted of a dying declaration H which the deceased repeated on several occasions identifying the accused as one of his attackers. The accused did not reply to the statement.
Held: (i) It is possible for a conviction to proceed upon evidence consisting of a dying declaration I only, although it is a rule of practice that a dying declaration requires corroboration before it can be acted upon;

(ii) the mere fact that the deceased consistently made precise and substantially identical A statements on several occasions is not evidence that such statements are accurate but only that the deceased was consistent in his belief that the accused had assaulted him.

Case Information

Accused acquitted.

Cases referred to: B

1. Republic v Magiligitia s/o Lumije [1974] LRT n. 57.
2. Rex v Mwinyimbegu s/o Mwinyimvuale [1933] 2 EACA 70.
3. R. v Ramazan Bin Mirandu [1934] 1 EACA 107. C
4. Rex v Mnyovya Bin Msuma [1939] 6 EACA 128.
5. R. v Ally [1971] HCD n 306.
6. Republic v Joseph Ngaikwamo [1977] LRT n.6.
7. Migezo Mibinga v Uganda [1965] E.A. 71.

Chinguwile for the Republic. D

Mbusa for the Accuseds.

[zJDz]Judgment

Sisya, J.: These two accused persons, Mohamed s/o Shedafa (whom I shall hereafter call the first accused) and Isa s/o Jeremiah alias Nyegere (whom I shall call second accused) stand jointly E charged with the murder of one Mohamed s/o Abdalla at Mlalo in the Lushoto District of Tanga Region. Both accused persons denied the truth of the charge.

It is in evidence on the Prosecution side - which evidence was neither challenged nor contradicted F and I accepted it as true - that on the morning of third March, 1980, the deceased was found lying helpless on the ground outside the village pombe club at Mhelo, Mlalo. He had ghastly cut wounds on the face, neck, right elbow, right buttock, right palm and right shoulder. He was removed and G taken to the local dispensary at Mlalo where first aid was administered on him. Thereafter he was taken to the government hospital, Lushoto, for further treatment. About seven days later he died in hospital. A postmortem examination was conducted on the body of the deceased by a Doctor Kombo. The said Dr. Kombo did not give evidence in this case. He somehow proved to be H "elusive" when it came to service of witness summons on him. His presence was, eventually, dispensed with after the Court was satisfied that the same could not be secured without undue delay to the hearing of this case in which the accused have been on tenterhooks for a little over five solid I years. The postmortem examination report

A which was prepared and duly signed by the doctor was, however, tendered and admitted in evidence (P.1). In it the doctor listed the injuries which the deceased suffered, namely cut wounds, and their respective dimensions. He also mentioned that some of the cut wounds had

gone septic. B The doctor certified in the report (P.1) that death of the deceased was due to tetanus.

The learned Counsel for both accused, Mr. Mbusa, made an issue out of the last point, namely the cause of the deceased/s death. According to Mr. Mbusa tetanus may set in even on a small wound. C In the instant case, argued Mr. Mbusa, we have not been told which wound was responsible for the setting in of tetanus. With respect, Mr. Mbusa's argument is self defeating. If, as he appears to concede, a small wound is capable of letting in tetanus then, a fortiori, a bigger wound, let alone wounds, would also do the same.

D In the instant case, as aforesaid, the doctor intimated in the postmortem examination report that some of the cut wounds had already putrefied. It is, to my mind and in all the circumstances of this case, reasonable to infer that tetanus must have set in the wounds which were septic. Since the deceased's wounds did not last a year and a day from the day on which they were presumably E inflicted to the day of the deceased's death (see Section 205 of the Penal Code) and in the light of provisions of Section 202 of the Penal Code, on my part, I entertain no doubts whatsoever on the causality of death in this case, the fact that tetanus set in notwithstanding. It is, and indeed it must F be deemed to be, the person who inflicted the cut wounds on the deceased. In short, I am satisfied, and I so find, that the deceased is dead and that he died a violent death.

The only question for serious and careful consideration by the Court in this case is the identification of the person or persons who inflicted the injuries from which the deceased subsequently died. It is G to the Prosecution evidence on this point that I now turn.

One Saudati d/o Saidi (PW1), wife of the deceased person in this case testified that one day her husband, the deceased, bade her goodbye and told her that he was proceeding to a place called H Mikongoloni where there was a festival. Mikongoloni is within the same Mlalo area but apparently some distance away from the deceased's house. The deceased did not return home. On the following morning she joined a search party for the deceased after she had reported the latter's failure to return home to his (i.e. deceased's) mother, sister and friends. It was during the said I search when she (PW1), that same morning, saw the deceased lying with injuries outside Mhelo village pombe club. She asked him what fate

had befallen him. He replied that he had been attacked and assaulted by Isa and Shedafa. A According to PW1 she did not know who the said Isa and Shedafa were. However, as a result of the deceased's condemnation she saw members of the search party apprehend the second accused who was also present and among them. It will be recalled that the second accused's first name is Isa. B

Evidence was given by the Senior Primary Court Magistrate, Mlalo, Mr. Raphael Karekamu (PW4) that on the morning of 3rd March, 1989, whilst he was on duty at the Primary Court, Mlalo, the first accused approached him and complained to him of having been assaulted by one Mohamed s/o C Abdalla on the previous evening. Mr. Karekamu listened to the first accused and then he made a formal reception of the said complaint. As he did so the second accused too

arrived. Mr. Karekamu asked him, i.e. second accused, what problem he had whereupon the second accused replied that he had gone there merely to see if the first accused whom he (second accused) described as his friend D had lodged his complaint. According to Mr. Karekamu, when asked the second accused replied that he, second accused, was present and witnessed the alleged assault on the first accused by one Mohamed Abdalla on the previous evening. Mr. Karekamu told the Court that, eventually, he E prepared to issue the usual process to the said Mohamed Abdalla as an accused person. Meanwhile he, Mr. Karekamu, received information that a person with serious injuries had been found. The name of the said injured person and the place where he was found tallied with those mentioned by the first accused in his complaint. This aroused his suspicion whereupon he F suspended the issue of the said process to Mohamed Abdalla, he placed the two persons, i.e. first and second accused under the custody of a militiaman, and, at his suggestion, they all set off for the scene of both alleged incidents. After walking a few hundred paces they met a group of persons G which approached from the opposite direction. The said group carried with them an injured person on a hammock. The injured person turned out to be the deceased in this case. Mr. Karekamu told the Court that he stopped the group and he then asked the deceased as to who had inflicted the injuries on him. Again, the deceased mentioned these two accused persons. In a deliberate exercise H to test if the deceased was in control of his faculties Mr. Karekamu asked him if he could point a finger at his alleged assailants. Without hesitation the deceased pointed at these two accused persons and added that the bone of contention was soup. According to Mr. Karekamu neither I accused said anything: However, they looked "sorrowful and confused". Since

A the deceased was in a critical condition Mr. Karekamu desisted from asking him further questions. He was then carried to the local dispensary where he was given first aid before he was referred to the government hospital, Lushoto, for further treatment. Meanwhile both accused were handcuffed and B taken to the Police station, Lushoto. They were at first charged with doing harm to the deceased. Later, when the deceased died, the charge was amended to that of murder.

It is in evidence that while at the dispensary, Mlalo, the deceased was asked again as to who inured C him and he condemned these accused persons.

One of the witnesses who gave evidence on the Prosecution side is the deceased's father, Abdalla s/o Sheshunda (PW5). He swore that he accompanied the deceased to Lushoto government D hospital and he remained there until the deceased's death. Before he died PW5 asked the deceased on two different occasions to name his assailants. On both occasions the deceased mentioned the accused persons. PW5 told the Court that the deceased alleged that he (deceased) had ordered some soup from the first accused. After drinking it he gave the first accused a Shs.20/= currency E note and asked for his balance. The first accused, however, did not want to release it. Instead the second accused came and caught hold of his hands and tackled him to the ground. Meanwhile the first accused cut him with a panga.

F Two witnesses Shabani Msagati (PW2) and Habibu Hamisi (PW3) who described themselves as friends of the deceased gave evidence in the case. They told the Court that they were with the deceased on that fateful evening. According to Shabani (PW2) the deceased was drunk to the extent that he staggered as he walked. Habibu, however, denied that the deceased was drunk on the G material evening. Shabani and Habibu told the Court that the two of them and the deceased stopped at Mhelo village pombe club and they entered the hut in which the first accused used to boil and sell some soup. As they did on many other minor details, Shabani and Habibu differed on H the original cause for their stop at the first accused's soup parlour. Shabani said that they did so that he could pay for the soup which he drank earlier during the day. Habibu, however, said that they actually stopped because the deceased wanted to drink some soup. Habibu told the Court that the deceased went ahead and ordered the soup. He was served the same and he drank it. Thereafter I the first accused demanded payment. The deceased replied that he would pay. To this the first accused reported that he

wanted to be paid with haste. He, first accused, abused the deceased as well by saying, "Kumanina A we".

According to Shabani as he was effecting payment the deceased suddenly began to abuse the first accused by saying, "Huna adabu". Both Shabani and Habibu are agreed that the deceased and the first accused then engaged each other in a physical confrontation. The details, again, however, B vary. Shabani stated in his evidence that the deceased pulled the first accused outside the hut and the two of them exchanged blows. In the course of the fight the first accused complained that the deceased bit his finger. Habibu, on the other hand, swore that the deceased and the first accused C only held each other and this took place inside the hut. He and Shabani intervened in time as the two pugilists prepared to hit each other with their hands.

Both Shabani and Habibu told the Court that after separating the deceased and the first accused the deceased left and disappeared. Efforts to trace the deceased in and around the pombe club proved D fruitless. Eventually, believing that the deceased had gone ahead Shabani and Habibu proceeded to their respective houses. Both these two witnesses told the Court that the deceased was all right when they last saw him that evening. Next time they saw him was on the following morning, with E injuries. They too heard the deceased mention these two accused as the persons who injured him. They also swore that the second accused was not present during the fracas in the first accused's hut.

Both accused gave their statements in defence upon affirmation. None of them called witnesses. F The first accused's story as to what happened in his hut on the material night tallies with what Shabani told the Court in his evidence. According to him, however, the abusive words which the deceased addressed to him were, "Kuma maayo. Mboro yake ndefu" and not only "Huna adabu" as G Shabani stated. The first accused told the Court that he was hurt in the fight because the deceased overpowered and hit him. Later he went to the local dispensary for treatment.

The first accused also conceded that on the following morning he went to the Primary Court, Mlalo, and lodged a complaint against the deceased. He did this to the magistrate, PW4. The first accused H denied that the second accused followed him at the Primary Court. He conceded that he was present when Mr. Karekamu questioned the deceased on the way as to who his assailants were and that the deceased then mentioned him. The first accused, however, denied that the second accused I was mentioned as well. According to the

SISYA J

A first accused he reminded the deceased, immediately after the latter had condemned him, that he (deceased) was all right when they parted on the previous evening. The magistrate, PW4, however, stopped the deceased from making a response.

B The second accused too raised the defence of denial. He denied that he followed the first accused to the Primary Court. According to him he was simply called by the Ward Secretary who then asked him what took place at the village pombe club on the previous evening. He expressed ignorance because he finished selling pombe quite early on the material evening. The second C accused also denied that the deceased ever mentioned him as one of the assailants.

Neither accused called any witnesses.

I summed up the case to the assessors. I reminded them that the only evidence in the instant case implicating these two accused persons is what the deceased himself is alleged to have repeatedly D stated to various persons including a magistrate, Mr. Karekamu (PW4). I told them that the said statement by the deceased, in so far as it related to the cause or to circumstances surrounding his death, was admissible in evidence. I, however, warned them that established case law demands that E such statements by dead persons should be corroborated by some other independent evidence before they can be acted upon. The first assessor advised that the two accused are not guilty whereas the second assessor found both accused guilty as charged and she advised that they should be convicted accordingly. The ball is now in my Court and I, necessarily, proceed to play it.

F It is conceded by both learned Counsel that the only evidence implicating these two accused is the deceased's dying declaration which he repeated to several persons including a magistrate, PW4. In it the deceased persistently mentioned these two accused persons as being the persons who G launched a panga attack on him. Evidence on this point was given by wife of the deceased (PW1), the two friends of the deceased (PW2 and PW3), the Senior Primary Court Magistrate (PW4) and the deceased's father (PW5). The second accused, as has been mentioned in the synopsis of the evidence hereinabove, denied that the deceased ever mentioned him. He was supported in this by H his co-accused, i.e. the first accused. If the accused were to be believed on this point then it means that the second accused was arrested and charged in this case for absolutely no reason at all. Prima facie this sounds ridiculous.

I In his statement in his own defence the second accused told the Court that residents of Mhelo village hated him because of his appointment in the Mhelo village pombe club. The second accused

SISYA J
himself is not a native of Mhelo village. In saying this the second accused was trying to A demonstrate to the Court that Prosecution witnesses would therefore be willing to lie against him. I am not in the least persuaded by this proposition. At any rate the magistrate, PW4, is not a resident of Mhelo village. In addition to this he is a completely independent witness in this case with B absolutely nothing to gain or lose in this matter. I accept him as a witness of truth, as I also do PW1, PW2, PW3 and PW5 on this point.
In the case of the Republic v Magiligita s/o Lumije [1974] LRT n 57 it was held by Mfalila J., inter alia, that one of the two tests which a dying declaration must satisfy before it can have any C evidential value is that the said dying declaration was in fact made. In the instant case I am satisfied on the evidence adduced, and I so find, that the deceased did make the dying declaration and further that in it the deceased condemned these two accused. By denying that the second accused too was mentioned both first and second accused persons lied in open Court. D
In the case of Rex v Mwinyimbegu s/o Mwinyimvuale and another (1933) 2 E.A.C.A. 70 at page 71 the Court of Appeal for Eastern Africa stated, categorically, that it was not prepared to rule that in no circumstances can a conviction proceed upon evidence consisting of a dying declaration only. E By necessary implication a conviction may, therefore, be founded solely on a dying declaration. The same Court, however, warned in the case of R v Ramazan bin Mirandu (1934) 1 EACA 107, that too great value should not always be attached to dying statements, and they should be received with F caution, and, in the case of Rex v Mnyovya bin Msuma (1939) 6 E.A.C.A. 128, that a careful direction must always be given by the trial judge as to the nature of evidence of dying statements and the caution with which it should be received. Concerning dying declarations the Court of Appeal for Eastern Africa quoted a passage from Field on Evidence, Seventh Edition, which is more instructive. G It reads:

"The caution with which this kind of testimony should be received has often been commented upon. The test of cross-examination may be wholly wanting; and ... the particulars of the violence may have occurred under H circumstances of confusion and surprise calculated to prevent their being accurately observed. The deceased may have stated his inferences from facts concerning which he may have drawn a wrong conclusion, I or he may have omitted important particulars, from not having his intention called to them".

1984 TLR p103
SISYA J
A The current position is that corroboration is required as a matter of practice before a dying declaration can be acted upon as proof of the content therein - see R. v Ally [1971] HCD n 306; R.v Magiligita s/o Lumije, supra; and Republic v Joseph Ngaikwamo [1977] LRT n.6.
B In arguing out the case before me the learned State Attorney, Miss Chinguwile, submitted that corroboration of the deceased's dying declaration in this instance may be found from the fact that both accused remained silent when the deceased, before whom they had been brought, not only C mentioned but also pointed at them in his condemnation. In support of her argument Miss Chinguwile quoted the Ugandan case of Migezo Mibinga v Uganda [1965] E.A.

71. In that case the appellant was convicted of manslaughter and the only evidence implicating him, as is the position in D this instance, consisted of repeated statements made by the deceased to several persons soon after he was discovered lying injured that it was the appellant who had beaten him. What happened was that the appellant was brought to where the deceased was lying, the deceased pointing at the appellant had said ".... You are the person who has beaten me" and the appellant made no reply. E The learned trial judge who happened to be no lesser a person than the Chief Justice of Uganda himself, Sir Udo Udoma, considered with care the circumstances under which the statements were made and looked for corroboration which he found in the conduct of the appellant when the latter F remained mute after being accused by the deceased in the presence of others of having beaten him. The appellant appealed to the Court of Appeal for Eastern Africa but his appeal was dismissed. The Court of Appeal held, inter alia, that "the probative force of a statement as to the cause of his death by a person since deceased is not enhanced by its being made in the presence of the accused unless G by his conduct, demeanor, etc., the accused has acknowledged its truth and consequently the trial judge should expressly state whether he is satisfied or not that there was such acknowledgement".

H In the present case I am satisfied, on the evidence adduced, that the deceased was in full control of his mental faculties when he made repeated statements that these accused persons were the ones who injured him, including the one which he made in the presence and within the hearing of the accused persons. As aforesaid the first accused swore that he querried the deceased. This is I diametrically opposed to what the Senior Primary Court Magistrate, Mr. Karekamu (PW4) said. One issue here is purely factual and it rests squarely on

the question of credibility. Without any hesitation I choose to believe Mr. Karekamu on this point. A As a magistrate his duty in this case is purely to assist the Court in ascertaining the facts. In addition to this nothing has been suggested, let alone established, nor has any fact established itself to show why Mr. Karekamu should deliberately lie and seek to implicate these accused persons in this matter. Mr. Karekamu swore that neither accused made any reply when the deceased B condemned and pointed at them. I find this as a fact. By claiming that he actually did try to challenge the deceased the first accused, again, lied in open Court. The story, however, does not C end there. According to Mr. Karekamu himself the accused persons were not given an opportunity to question the deceased on their condemnation. It is common ground that the deceased was, at the material time, in a critical condition. Nevertheless, having seen the importance of testing the deceased's faculties Mr. Karekamu should also have perceived the importance D

of giving the accused an opportunity of putting a few questions to the deceased. As afore intimated this he failed to do.

Mr. Karekamu, however, pointed out that both accused appeared "sorrowful and confused" when the deceased named them as his assailants. I have already found that Mr. Karekamu is an honest E and truthful witness. I am, therefore, prepared to act on his evidence without reservations. That being the case can it, positively, be gainsaid that the accused remained mute

simply because of sorrow and confusion at being named and not necessarily as acknowledgement of the truth of the dying declaration? On my part, in all the circumstances of this case - particularly the fact that the F accused were not given an opportunity, albeit for a short time, to question the deceased - I entertain grave doubts as to whether or not by failing to make a reply these two accused persons acknowledged the truth of the dying declaration. The law demands that every doubt must be G resolved in favour of the accused. It is, therefore open to me to find, which I do, that the accused persons' failure to reply to the deceased's statement in the instant case was not or cannot be taken as acknowledgement of its truth. The case of Migezo Mibinga (supra) can thus be distinguished H from the instant one on this ground.

I have considered the accuseds' deliberate lies in open Court. Clearly they are a manifestation of the weakness of the defence case. The position in law is that a conviction should not be grounded on the weakness of the defence case. Can't the lies provide corroborative evidence of the dying I declaration in this case? I have

1984 TLR p105

SISYA J

A considered this question as conscientiously as I could and I have come to the conclusion that they may and they may not. I am satisfied that the accused could have chosen to lie out of sheer stupidity having realised that everyone who came forward stated having heard the deceased B mention these accused as his assailants. But though consistency of reiterated statements is undoubtedly some ground, generally speaking for thinking that the person who makes them believes in their truth, it is no guarantee of accuracy. This is a statement of law but most probably beyond the knowledge of these accused persons.

C In the instant case the dying declaration must be received by the Court with greatest caution. This is because the attack on the deceased was made in the night which according to Shabani (PW2) was a dark night. The circumstances in which the incident took place as described by the deceased D to his father, PW5, differed from what the supposed eye witnesses, i.e. PW2 and PW3, stated. Both PW2 and PW3 swore that there was a physical engagement between the first accused and the deceased on the material evening and that the latter emerged unscathed. If so then the only reasonable inference to be drawn from the evidence of PW2 and PW3 is that the E attack in which the deceased was injured must have taken place in a subsequent incident and in their absence. There is absolutely no evidence whatsoever as to how the deceased managed to see and identify the first and second accused and that the incident did not take place in the same night and in darkness and in circumstances of confusion.

F Indeed, on the evidence of PW2 and PW3 and on the first accused's own statement in defence one may reasonably infer a motive on the part of the first accused to attack the deceased. The first accused was, admittedly, overwhelmed in the first encounter. At the same time the said first G encounter, per se, could also have acted, as a basis for the deceased's inference that the person who attacked him suddenly and in the dark that same night was the first accused. On the evidence on record it cannot be stated with moral certainty and to the exclusion of every reasonable doubt that the deceased could not have erred in so doing.

H Suffice to say that after considering the evidence which has been adduced in this case as carefully as I could I find that it will be dangerous to convict the accused persons. I find them not guilty and I acquit them of the offence charged. Unless they are being held for some other lawful I purposes it is hereby directed that both first and second accused be set at liberty forthwith.

Accuseds acquitted.

1984 TLR p106

A

[zRPz]REPUBLIC v CHARLES KIEGEZO 1984 TLR 106 (HC)

Court High Court of Tanzania - Tanga

Judge Sisya J

August 20, 1986

CRIMINAL APPEAL 32 OF 1984

Flynote

Criminal Law - Theft - Discrepancy in accounts - Whether amounts to theft. B

Statutory Interpretation - Person employed in the public service -Person employed by a subsidiary of a parastatal organization - Whether falls within definition of "person employed in the public service", - Penal Code section 5. C

-Headnote

The appellant an employee of a subsidiary of a parastatal organization, was convicted of theft by a person employed in the public service. The evidence was entirely circumstantial in that he had failed to account for some discrepancy in his accounts. D

Held: (i) Mere discrepancy in the accounts per se does not constitute conclusive proof of theft;

(ii) where a person is charged with theft by a person employed in the public service, specific evidence must be led to show that he is employed in the public service instead of merely mentioning E the institution in which he is employed.

Case Information

Appeal dismissed F

No case referred to.

[zJDz]Judgment

Sisya, J.: This appeal is by the Director of Public Prosecutions against the acquittal by the learned District Magistrate, Muheza, of the respondent, Charles Kiegezo, after his trial on a charge of theft G by a person employed in the public service. He, respondent, was alleged to have stolen cash shs.55,044/= property of his employer, the Ngomeni Kamba Factory.

It is common ground that the respondent was employed at Ngomeni Kamba Factory from 1/7/78 to 22/9/80 when he was dismissed from service. Although it is conceded, as indeed it must, that H therefore he was a servant of the said Ngomeni Kamba Factory the evidence, however, is dead silent as to why he was labelled in charge sheet as a public servant. The term a person

employed in the public service is defined by the law, see Section 5 of the Penal Code. By reason thereof I am positive I that an employee of, say, Amboni
1984 TLR p107
SISYA J
A Plastics Factory does not qualify for that term. The point I am driving at is that evidence ought to have been adduced in this case by a competent witness to establish that the respondent was, throughout the relevant period, a person employed in the public service. For purposes of the instant B matter this is mere academic exercise but the learned Public Prosecutor who conducted this case should, however, take note for his future guidance.
Getting back to the facts of the case, it is likewise common ground that the respondent started as an assistant Accountant and from 24/11/78 to the date of his dismissal he became cashier. His duties as C cashier included receipt of all revenue or payments made to the factory and to effect payments for and on behalf of the factory. Every payment to the factory was to be acknowledged by issuance of an official receipt and every payment by the factory was to be effected on or evidenced by a D payment voucher duly authorised. It is alleged in the charge that the respondent stole the money between 24th day of November, 1978, and 27th day of January, 1979. The little that can be gathered from the evidence, however, tends to suggest that there were separate and distinct takings and on different dates from those shown in the charge sheet. In law, each distinct and separate taking or E fraudulent conversion constitutes an offence and each offence must be charged separately, which also means in separate counts albeit in the same charge sheet. In this instance by conglomerating all the supposed distinct takings in a single count the person who framed the charge erred. I do not F propose to say anything more on this point.
With these undisputed facts in the background one would have expected the person who checked the respondent's accounts and discovered the so-called loss to have had an easy task to perform in G so doing as well as in explaining the same to those concerned, including the Courts of law. The man who checked the respondent's accounts and discovered the alleged loss was one Yohana Mshami (PW2), who described himself as the Chief Accountant at Ngomeni Kamba Factory. Contrary to one's expectation Mshami's evidence in this case is not only confusing but it is, itself, H also confused. It is, by far, too much below the standard required of a man of his status. As Chief Accountant, and, more importantly, as the person, as aforesaid, who checked the accounts and discovered the alleged theft, he is a principal witness in the case. I will produce samples from his I text in order to demonstrate the type of his evidence. Fairly early in his evidence-in-chief Mshami is recorded to have said, and I quote from the record of proceedings:
1984 TLR p108
SISYA J
"On 24/11/78 he (i.e. respondent) was charged to become a cashier..... The accused continued with this work A to 27/1/79 ..... When the accused handed the cashier duties to the new cashier it was detected that there was shortage of cash, shs.45,941/25. Again we detected

another loss in his cash book which all amounted to shs.55,044/20. Cash short was shs.45,941/25 as follows: B

On the handover on 24/11/78 the former cashier had a cash short of sh.19,279/75 which the accused inherited. This sum ought to be deducted from the actual loss attributed to the accused. Thus the C figure drops to shs.26,661/50 which was actual loss by the accused.

It is not known what Mshami did with the figure of shs.55,044/20 which he, earlier on, had said was the total amount of the sum lost. In his attempt to explain how the amount in the charge was arrived D at Mshami went on to say, and, again, I quote from the record of proceedings:

In December, 1978, the accused paid total cash shs.144,236/20 which had no supporting documents. At the E same time he entered revenue which had no supporting document which amounted to shs.114,406/70 the difference was shs.29,829/40. In January, 1981 the accused paid a total amount of shs.120,185/= and he F entered revenue of shs.95,829/55, difference was shs.34,355/45. There was also difference of shs.13,000/= in six days he worked from 24/11/78 - 30/11/78. In this period he paid total amount of shs.25,603/85, the revenue was shs.12,574/05, the difference was shs.13,029/80. G

It seems Mshami took the difference between the monthly income and the monthly expenditure as the amount 'stolen' by the respondent in that month. I must admit that I have failed to comprehend the rationale behind this. Anyhow, the total amount (i.e. shs.29,829/10 & shs.34,355/45 & H shs.13,029/30) is shs.77,214/65. He, i.e. Mshami, went on to say:

On checking, we detected that there were other payments effected without being recorded in the accused's I cash book. The amount paid by this way amounted to shs.21,208/95. Thus

A the whole difference outlined above minus this sum, the total cash paid unsupported is shs.56,006/60.

This is actually shs.77,214/65 minus shs.21,208/05. Mshami then added:-

B I cannot tell how the accused managed to count money (for) which he had issued no receipt.

C Likewise, it also beats my comprehension how Mshami verified his figures without any documents. One is, thus, left in doubt as to whether the figures said to be of expenditure and even those said to be of revenue are correct and proper. Of equal significance is the fact that at no time or stage in his evidence did Mshami, or any other witness for that matter, swear that he physically D checked the cash and confirmed or verified the alleged deficit. This creates a lacuna in the Prosecution case which is very fundamental in that it goes deep to the root of the Prosecution case.

This flaw also explains why Mshami was very erratic in his figure of the alleged stolen sum. At one E stage in his evidence-in-chief Mshami fixed the figure at shs.103,862/60, "which the Accused stole." He went on to tell the Court that later, however, it was found that some of the payments made by the respondent were 'genuine'. By using his somewhat dubious calculations and F deductions Mshami then eventually settles on shs.55,044/=. This includes three alleged

payments of shs.10,994/50, shs.3000/= and shs.7,200/= as per Exhs. PI, P2 and P6 made to him. I, however, hasten to point out that there is not even a grain of evidence to show that the said payments were, in fact, made to him, i.e. respondent.

G In short all that can be said about this matter is that it was a wangle right from the word go. It is clear from the evidence of Mshami that the accounts of the Factory were already in a mess when the respondent was told to take over but, on the evidence and material available, the worst that can be said about the respondent is that he made the said accounts even more hay wire. Criminally, I find H no sufficient evidence on which to found and sustain a conviction.

In the final result this appeal fails and it is hereby dismissed.

Appeal dismissed.

1984 TLR p110

A

[zRPz]INSPECTION NOTE 1984 TLR 110 (HC)

Court High Court of Tanzania - Tanga

Judge Sisya J

Flynote

Criminal Practice and Procedure - Jurisdiction - A magistrates' court entertains an offence of intentionally B endangering the safety of persons travelling by railway under section 224(5) of the Penal Code - Offence triable in the High Court - Whether error curable.

[zJDz]Judgment

Sisya, J.: made the following inspection note in the Resident Magistrates' Court of Tanga Criminal C Case Nos. 45 of 1984, Republic v Idd Ramadhani and Mdoe Mduma:

These two accused persons appeared on 28/10/83 before the Principal Resident Magistrate, Tanga, M.M. Luguru Esq., charged, jointly, with a single offence of intentionally endangering the safety of D persons travelling by railway, contrary to section 224(5) of the Penal Code. The offence is triable by the High Court see Section 4 and 5 of the Criminal Procedure Code and Part A of the first Schedule thereto. Mr. Luguru, however, did not only read over and explain the charge to the accused persons. He also asked them to plead thereto and both of them pleaded not guilty to the E charge. These latter steps were a nullity because the learned Principal Resident Magistrate acted without or in excess of his jurisdiction.

Be it as it may, thereafter followed a series of adjournments. The record passed through the hands of several other magistrates, one of whom was S.C. Byabusha Esq., Resident Magistrate. During his F turn Mr. Byabusha made the following endorsement in the file and I quote from the record of proceedings:

> Court: The offence is triable by the High Court. The accused are informed on the procedures and the G prosecutor is directed to initiate steps for a P.I.
>
> Charge is explained to the accused who are not asked to plead. H

As investigations were said to be incomplete there followed another spate of adjournments. Finally, the matter came up before Mr. Luguru again on 7.6.84 when the Public Prosecutor applied "to withdraw (the) charge under section 86(a) C.P.C." The learned Principal Resident Magistrate then made the following endorsement in the file that is to say: I

1984 TLR p111

SISYA J

A "Application granted as prayed, accused discharged under s.86(a) C.P.C."

Coincidentally, the Public Prosecutor who made the application is shown in the record to have been B the same as when the case was first brought before Mr. Luguru and pleas of the accused were taken and recorded.

Again this was an error because a public prosecutor can withdraw from the prosecution of any person under section 86 of the criminal Procedure Code only in cases which are triable by a C subordinate court, of which the instant one was not.

Two things emerge from this matter. The first is that both the learned Principal Resident Magistrate and the Public Prosecutor, a Inspector Exaud, who appeared before him on both occasions under D querry are oblivious of the provisions of section 4 and 5 of the Criminal Procedure Code and part A of the first schedule thereto. They are well advised to acquaint themselves with these provisions of the law.

The second point is that it is abundantly clear that Mr. Luguru, PRM., did not bother to read what E his learned brothers had endorsed in the same file when this same matter was pleaded before them. Had he done so he would almost certainly not have failed to see the endorsement by Mr. Byabusha which I have quoted supra and which demonstrates the proper way of how this matter ought to have F been handled. In this connection Magistrates are reminded that it is desirable to go through the record, particularly the one which has gone through several hands, and acquaint oneself with all the endorsements and/or orders therein before proceeding to the next step.

G For the benefit of the learned Principal Resident Magistrate and his Public Prosecutor the section stating that they ought to have withdrawn from the inquiry is s.222 of the Criminal Procedure Code.

As the accused persons were not prejudiced or embarrassed by these errors I make no orders in this matter. The record should, however, now be sent back to the court of the Resident Magistrate, H Tanga, for safe custody.

Order accordingly

1984 TLR p112

A

[zRPz]SHILLO MZEE v FATUMA AHMED 1984 TLR 112 (HC)

Court High Court of Tanzania - Tanga

Judge Sisya J

July 2, 1986
MATRIMONIAL CIVIL APPEAL 1 OF 1984
Flynote
Family Law - Divorce - Petition for divorce filed without certificate from Marriage Conciliatory Board - B Whether irregularity curable - Law of Marriage Act 1971.
Family Law - Injunction - Conditions precedent to its grant under the Law of Marriage Act 1971, Section 138(1). C
-Headnote
The respondent filed a petition for divorce before a Magistrates' Court without a certificate from the Marriage Conciliation Board. Meanwhile, the magistrate issued an order of injunction restraining the appellant from disposing of the matrimonial assets pending the settlement of the dispute. D
Held: (i) In the absence of a certificate from a conciliatory board a petition for divorce becomes premature and incompetent;
(ii) an injunction under section 138(1) of the Law of Marriage Act, 1971 can only lie where a E matrimonial proceeding is pending before the court making the order.
Case Information
Appeal allowed. F
No case referred to.
[zJDz]Judgment
Sisya, J.: The respondent filed a petition in the Court of the Resident Magistrate, Tanga, against her husband, the appellant, for divorce. She also prayed for an injunction restraining her appellant G husband from disposing of, in any manner, a house which she contends is a matrimonial asset. The learned Resident Magistrate found that the petition had hastily been brought to Court without the prerequisite certificate from a Marriage Conciliatory Board. She then 'remitted the case to the H Conciliatory Board for settlement.' Meanwhile the learned trial lady Magistrate granted the application for an order of injunction 'pending the last decision of the dispute.' This appeal is from the decision of the learned trial Magistrate on these two points.
I agree with the learned trial Magistrate that in the absence of a certificate from a Conciliatory Board I and the case not falling under
1984 TLR p113
A any of the exceptions listed in Section 101(a) to (f) of the Law of Marriage Act, 1971, the petition was prematurely filed and consequently, therefore, it was incompetent. Having come to that conclusion it was open to the learned trial Magistrate to dismiss the petition and not to, as it were, B leave the matter hanging in the air. So much for that.
Now, turning to the question of injunction, section 138(1) of the Law of Marriage Act, 1971, is only applicable where a matrimonial proceeding is pending before the Court making the order. Having C declared that the petition was prematurely filed there was no longer any matrimonial proceeding pending before the Court. The Court was thus not competent to make the order of injunction.

Again, the appellant's complaint on this point is valid. The said order is quashed and set aside.
D In the final result this appeal succeeds and it is accordingly hereby allowed. I, however, make no order as to costs.
Appeal allowed.
1984 TLR p113
E
[zRPz]HEMEDI SAIDI v MOHAMEDI MBILU 1984 TLR 113 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

July 5, 1986
F (PC) CIVIL APPEAL 31(B) OF 1984
Flynote
Evidence - Credibility - District Court finds witnesses for both parties reliable and divided the disputed land amongst the parties - Whether proper.
G Civil Practice and Procedure - Failure of party to call material witnesses on his side - Whether adverse inferences can be drawn against such party.
Land Law - Abandoned shamba occupied and developed by another - Whether developer is trespasser.
-Headnote
H The appellant and respondent laid conflicting claims to a piece of land. At the conclusion of the dispute the trial court decided in favour of respondent. On appeal to a District Court, the decision of I the trial court was overturned and the land was divided equally among the claimants, the District Court ruling that both parties had strong claims.
1984 TLR p114
SISYA J
On further appeal to the High Court, the major issue was credibility of witnesses. A
Held:(i) According to law both parties to a suit cannot tie, but the person whose evidence is heavier than that of the other is the one who must win; B

(ii) in measuring the weight of evidence it is not the number of witnesses that counts most but the quality of the evidence;

(iii) where, for undisclosed reasons, a party fails to call a material witness on his side, the court is entitled to draw an inference that if the witnesses were called they would have given evidence C contrary to the party's interests.
Case Information
Appeal allowed.
No case referred to D
[zJDz]Judgment

Sisya, J.: The respondent brought an action in the Mlola Primary Court of Lushoto District seeking to recover from the appellant a piece of land upon which the latter had allegedly trespassed. Judgment was given against him. On appeal to the District Court the first appellate Court, in its E Solomonic decision, altered the decision of the Court of first instance and ordered that the piece of land in dispute be divided into two equal parts with each party being awarded a part thereof. Aggrieved by that decision the appellant has now appealed to this Court. The question for F consideration in this second appeal is whether the decision of the Court of first instance was justified and supported by the evidence. This is a point of law.

In support of his case before the Court of first instance the respondent, in addition to himself, called G two witnesses on his side. These were Rashidi Senkondo (PW2) and Saidi Bakari (PW3). These and the respondent swore that the latter bought the disputed piece of land from his grandfather, one Mmasa Tumbatu in 1971 for Shs.160/=. The said Mmasa Tumbatu was not called as a witness and he did not therefore, give evidence in the case. The respondent stated in his evidence that in 1982 H he left and went to Upare. It was during that period of his absence when the appellant trespassed upon his land.

In his defence at the hearing of the case by the Court of first instance the appellant stated that he bought the disputed piece of land from one Abed Musa in 1978. The said Abedi Musa (PW2) I

A gave evidence in the case and he confirmed what the appellant stated on this aspect of the case. The said transaction was reduced to writing and the relevant piece of paper was tendered and admitted in evidence at the hearing of the case. The said piece of paper shows that, in all, nine B persons witnessed the transaction and among them was the respondent: His name is the first on the relevant piece of paper.

Abedi Musa (DW2) swore that the disputed piece of land originally belonged to his father, one Musa Senkondo. He was the one who opened up the said piece of land for cultivation from virgin C land. In 1973 the said Musa Senkondo gave the piece of land to his son Abedi Musa. Later that same year, i.e. 1973, Musa Senkondo died. He, i.e. Abedi Musa, continued to cultivate the piece of land until 1978 when he sold the same to the appellant.

D Another witness, Musa Saidi (DW3), swore that he shares a common boundary with the piece of land in dispute. He told the Court that he has been occupying his piece of land since 1959. At that time the piece of land in dispute was being cultivated by father of the appellant, Musa Senkondo. When the said Musa Senkondo died he saw Abedi Musa and his wife cultivating the said piece of E land. In 1978 he noticed that he had a new neighbour on the disputed piece of land. He was the appellant. In September, 1978, the respondent passed the boundary and trespassed upon his, i.e. DW3's, piece of land. It was Abedi (DW2) who came and settled the boundary dispute.

F After the Court of first instance had heard all the evidence both parties made an application to the Court to visit the piece of land in dispute. A date was then duly fixed for that exercise. However, on the said date the respondent successfully moved the Court to abandon the visit because, according G to him, he had just realised that he had sued the wrong party. The

proposed visit, if carried out, would thus amount to a waste of money and time. The Court of first instance then proceeded to pass judgment which it did in favour of this appellant. This decision was, as aforesaid, altered by the District Court where the respondent had resorted to by way of a first appeal.

H The learned District Magistrate found that there was to use his own expression, a tug of war over the disputed piece of land between the parties. If I understood him quite correctly, of course there was, and there still is. The learned District Magistrate then went on to observe that each party had I a good claim to the disputed piece of land. He then came forward with the Solomonic decision and halved the piece of land in question with a portion for each party. The only

substantive reason raised by the appellant is that the learned District Magistrate acted against the A weight of the evidence.

According to law the person whose evidence is heavier than that of the other is the one who must win. In this instance each party called two witnesses in addition to himself at the hearing of the case in the Court of first instance. In measuring the weight of evidence in such cases as the present one B it is not, however, the number of witnesses whom a party calls on his side which matters. It is the quality of the said evidence. In this connection the evidence of a single witness may be a lot heavier than that of ten witnesses. It is to this issue of the weight of the evidence in this case that I now C turn.

Starting with the respondent's side, as aforesaid he, i.e the respondent, alleged that he bought the disputed piece of land from his grandfather, Mmasa Tumbatu. One would, naturally, have expected the respondent to call the said Mmasa Tumbatu to give evidence. He, however, did not do so nor D did he give any reason why the said Mmasa Tumbatu could not be called as a witness. Again, the respondent stated in his evidence that at one stage he lent the same piece of land in dispute to one Almasi Sebarua for cultivation purposes. The said Almasi Sebarua used it for one year and returned E it to the respondent. Like Mmasa Tumbatu, Almasi Sebarua was another material witness whom, for undisclosed reasons, the respondent failed to call as a witness on his side. In such cases the Courts are entitled in law to draw an inference that if these witnesses were called they would have given evidence contrary to the respondent's interests. The duty to call witnesses is not the Courts F but it is for the party who wants to be believed in his story and win the case. As aforesaid, two witnesses gave evidence on the respondent's side. They merely, so to say, sang the respondent's song that the disputed piece of land was given to the respondent by his grandfather in 1971. They G claim to have been present at the time and to have witnessed the handing over. They, however, did not explain their capacities in which they were, presumably, summoned to witness the transaction.

Now turning to the appellant, as aforesaid, he stated that he bought the piece of land in question H from a person who, himself, also gave evidence and confirmed the story. Not only that. The said person, Abedi Musa, told the Court of first instance how the same piece of land came into

his possession. This story was supported in material particular by a person, Musa Saidi (D.W.3), I
1984 TLR p117
A who has been neighbour to the disputed piece of land since 1959, and he still is to date.
In his evidence the appellant expressed surprise why the respondent did not react immediately when B he, appellant, went into occupation in 1978. In fact it is even more surprising that he, respondent, chose not to do anything when the father of Abedi Musa occupied the piece of land in 1959 or when Abedi Musa himself occupied the same piece of land in 1973 and continued to do so for five solid years. In short, on my evaluation of the evidence I find that the evidence adduced by the appellant C was a lot weightier than that of the respondent. The decision of the Court of first instance was thus justified in law.
In the final result, this appeal has merit and it is hereby allowed. The judgment and orders of the District Court are quashed and set aside and the decision of the Primary Court, Mlola is restored. D The respondent is condemned in costs.
Appeal allowed.
1984 TLR p117
E
[zRPz]ALI RASHID SULEIMAN NASSOR LEMKI v HOTEL INTERNATIONALE LIMITED
1984 TLR 117 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mustafa JJA, Makame JJA and Kisanga JJA

September 14, 1984
F CIVIL APPEAL NO. 15 of 1983
Flynote
Land law - Vacant possession - Whether lack of alternative accommodation is a bar to making an order of G vacant possession - S. 19(1) (e)(ii) of the Rent Restriction Act, 1963.
-Headnote
The appellant had filed an action in the court of the Resident Magistrate, Dar es Salaam seeking to recover vacant possession of the premises on Plot 942/157, Lindi Street, Dar es Salaam and mesne H profits from the respondent who was in occupation as a tenant. The appellant succeeded in the court of the Resident Magistrate. The decision of the Resident Magistrate was reversed on appeal by the High Court. This appeal is against the decision of the High Court.
I Held: In terms of section 19(1)(e) (ii) of the Rent Restriction Act, no order for possession can be made in the absence of alternative accommodation being available.
1984 TLR p118
MUSTAFA JA
Case Information
Appeal dismissed. A

No case referred to.
F.S. Mbuya for the appellant.
[zJDz]Judgment
Mustafa, J.A.: delivered the following judgment of the court: B
The appellant had filed an action in the Court of the Resident Magistrate Dar es Salaam seeking to recover vacant possession of the premises on Plot 942/157, Lindi Street, Dar es Salaam and mesne C profits from the respondent who was in occupation as a tenant. It is common ground that the respondent is a protected tenant under the Rent Restriction Act. The appellant succeeded in the court of the Resident Magistrate, but when an appeal was preferred in the High Court, the decision of the Resident Magistrate's Court was reversed. From the High Court decision the appellant is D appealing to this Court.
The appellant had inherited the premises in question from his father. The respondent had been a tenant of the premises in the time of the appellant's father, when the appellant was a minor. Rent was regularly paid by the respondent. In 1971 the suit premises were acquired by the Registrar of E Buildings under the Acquisition of Buildings Act and the respondent then paid its rent to the Registrar of Buildings. In October 1972, as a result of representations made by P.W.3 Rehma, the appellant's ex-wife, who stated that she was acting on behalf of the appellant, the Registrar of F Buildings "restored" the building in the name of P.W.3 Rehma, and directed that the rental thereof be for the benefit of the appellant and his children. The respondent thereafter paid rent to P.W.3 Rehma.
The appellant alleged that he needed the suit premises, which are commercial premises used in a G hotel business by the respondent, for himself as the appellant wanted to engage himself in the hotel business. The appellant had floated a private limited company, called the Havemore Hotels Company Limited with himself and his ex-wife as the only share holders. Each has one share of shs. 20/=; and the total paid up capital is shs. 40/=. The proposed hotel business would presumably be H run by the Havemore Hotels Company Limited.
In the trial court, the magistrate framed a number of issues and among them were:

(a) is alternative accommodation reasonably equivalent available or would it be available at the time the order takes effect: and I

A (b) would it be reasonable to make an order for possession.

In his judgment the magistrate stated that the issue of alternative accommodation "is the kernel of the entire dispute". However, in considering that issue he thought that it was necessary to consider B whether the refusal to grant vacant possession would cause greater hardship to the landlord or the tenant. And he thought that to decide that point it was necessary to deal with the two issues, alternative accommodation and reasonableness to make a possession order simultaneously. He C compared the respective financial positions and conditions of the parties and concluded that it was just, reasonable and equitable to grant vacant possession to the appellant. He was satisfied that no alternative accommodation was or would be available, but he seemed to suggest that the respondent, being a wealthy party, should have secured a plot and put

up a building to serve as D alternative accommodation. In any event he in effect held that the absence of alternative accommodation was no bar to an order for possession being made.
On first appeal, that decision was reversed. The judge in brief, held that:
E (1) the appellant had no locus standi as the ownership of the suit premises was vested in the appellant's ex-wife P.W.3 Rehma.
(2) No order for possession could be made in the absence of alternative accommodation.
F (3) Since the suit premises were to be leased to HavemoreHotels Company Ltd., the appellant did not require the suit premises himself, and thus could not suffer hardship.
G Mr. Mbuya, before us, as he did before the first appellate judge, submitted that, in the circumstances of this case, the lack of alternative accommodation is no bar to the making of an order for possession. We are unable to agree. In terms of section 19(1)(e)(ii) of the Rent Restriction Act, no order for possession can be made in the absence of alternative accommodation being available. H This case comes squarely within those provisions, and clearly is not one for which an exception can be made. On this ground alone the appeal must fail.
We have heard attractive arguments from both learned counsel on the issues of locus standi and whether the appellant could be said to require the suit premises in the context of the part being I played by the Havemore Hotels Company Ltd. Since we have decided the appeal on the alternative accommodation ground, it is not strictly

necessary for us to deal with those two interesting points. We will deal with them as and when the A need arises. The appeal is dismissed with costs.
Appeal dismissed.
1984 TLR p120
B
[zRPz]GRACE FRANK NGOWI v DR. FANK ISRAEL NGOWI 1984 TLR 120 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Mustafa JJA, Makame JJA and Kisanga JJA

August 14, 1984
CIVIL APPEAL NO. 9 OF 1984 C
Flynote
Civil Practice and Procedure - Appeals - Failure to serve copy of application for record of appeal - Whether appeal time barred - Rule 83(2) of Tanzania Court of Appeal Rules, 1979. D
Civil Practice and Procedure - Appeals - Effect of failure to serve notice of appeal and memorandum and record of appeal - Rules 77 & 90 of Tanzania Court of Appeal Rules, 1979.

Civil Practice and Procedure - Appeals - Effect of omission of letters and exhibits produced at trial but not reflected in record of appeal - Rule 89(1)(c) & k of Tanzania Court of Appeal Rules, 1979. E

-Headnote

The respondent had made an application to strike out the appeal filed by the appellant on the ground that some essential step in the proceedings in the appeal has not been taken or has not been F taken within time, in terms of the Tanzania Court of Appeal Rules, 1979.

Held: An appeal would be struck out where no satisfactory explanation is given as to why the various rules of the Tanzania Court of Appeal Rules, 1979, were not complied with. G

Case Information

Application granted.

No case referred to H

P.M. Jonathan, for the appellant

F.B. Mahatane, for the respondent

[zJDz]Judgment

Mustafa, J.A.: delivered the following judgment of the court: Mr. Mahatane for the respondent has made an application to strike out the appeal filed by the appellant on the I

1984 TLR p121

MUSTAFA JA

A ground that some essential step in the proceedings in the appeal has not been taken or has not been taken within time, in terms of Rule 82 of the Court of Appeal Rules. Mr. Mahatane submitted 5 grounds in support of his application. He contended that the appeal is time barred in terms of Rule B 83 as the appellant was not entitled to exclude the time required for the preparation and delivery of the record from computation as the appellant had not sent a copy of the application for the record copy to the respondent in terms of Rule 83(2). Secondly, he submitted that up to now no notice of appeal has been served on his client, in contravention of Rule 77. Thirdly, the record of appeal was C not served by the appellant on the respondent. He stated that his client came to know of the appeal on 7th August, 1984, from friends and came to Court and obtained a court copy of the appeal record at the Arusha District Registry. The appellant's failure to serve the memorandum and record D of appeal offends Rule 90.

The fourth complaint by Mr. Mahatane refers to the absence of the payment of security for costs of the appeal in contravention of Rule 114.

E The fifth and final ground refers to the defective and insufficient record filed. There was an amended petition in the course of the trial, and such amended petition was not reflected in the record. There were a number of letters and exhibits produced at the trial and no copy of such exhibits was reflected in the record. This offends Rule 89(1)(c) and (k) and in the absence of such F documents it is not possible to properly determine the appeal.

In reply Mr. Jonathan for the appellant admitted all these allegations. As regards the failure to serve the notice of appeal and the memorandum and record of appeal, he stated that a Mr. Minja of the G Arusha District Registry had offered to serve the respondent, but had failed to do so. As regards the non-despatch of a copy of the application for a copy of the record to the

respondent, he stated he had inadvertently omitted to do so. In any event, he submitted, as regards these three lapses on his part, no prejudice could have been caused to the respondent.

H In regard to the defective and insufficient records, he stated that he was supplied the said record by the District Registry. It was an oversight that the copies of the exhibits and the amended petition were not included in the record.

I As regards non-payment of the security for costs, he stated that he was doubtful if such was necessary, and stated that, if ordered by the court, such payment would be made.

1984 TLR p122

We are satisfied that Mr. Mahatane's grounds of complaint are valid. Mr. Jonathan has not given A any satisfactory explanation as to why the various rules of the Court of Appeal Rules were not complied with. In the circumstances we strike out the appeal. As this refers to a matrimonial matter, in the exercise of our discretion, we make no order as to costs. B

Application granted.

1984 TLR p122

C

[zRPz]ISSA WARSAMA v SALIM A. BHANJI 1984 TLR 122 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Mustafa JJA, Makame JJA and Kisanga JJA

August 2, 1984

CIVIL APPEAL NO.7 OF 1984 D

Flynote

Land law - Leases - Whether commercial premises can be recovered by Landlord for residential purposes - S.19(1) (e)(ii) of Rent Restriction Act 1963, Cap.479. E

Land law - Leases - Whether the availability of alternative accommodation is immaterial upon an order for recovery of possession - S. 19(1)(e)(i) and (ii) and s. 19(2) of Rent Restriction Act, 1963 F

-Headnote

The appellant was a monthly tenant of premises owned by one Selemani Yasini in the Municipality of Dodoma. The appellant ran an eating house business in the premises since 1970. In 1981 the premises were sold and the right of occupancy was duly transferred to the respondent who subsequently converted them into residential premises. He gave three months' notice to the G appellant to vacate who refused to do so. The respondent sued the appellant in the Resident Magistrate's Court, Dodoma for eviction and was successful. The appellant appealed from that judgment to the High Court, but was unsuccessful hence the present appeal. H

Held: (i) The judge was right in coming to the conclusion that a landlord may enter into occupation of premises under section 19(1) (e) (ii) intending, as part of his enjoyment thereof to make alterations with a view to change of user; I

(ii) on a proper construction of sections 19(1)(e)(i) and (ii) and

1984 TLR p123

MUSTAFA JA

A 19(2) we do not think that alternative accommodation is immaterial if an order for possession is made.

Case Information

Appeal dismissed.

B No case referred to.

S. Elmaamry, for the appellant

[zJDz]Judgment

C Mustafa, J.A.: delivered the following judgment of the court: The appellant was a monthly tenant of premises on Plot 2, Block A, Mwangaza Avenue, in the Municipality of Dodoma. The premises were owned by one Selemani Yasin. The appellant ran an eating house business in the premises, since 1970. In February 1981 Yasin sold the premises to the respondent Bhanji and the right of D occupancy was duly transferred to and registered in the name of the respondent. The respondent knew of the tenancy in favour of the appellant.

The respondent had purchased the premises intending to use them for personal occupation, and E proceeded to take steps to obtain, and eventually did obtain, permission to convert them into residential premises. He gave three months' notice to the appellant to vacate. The appellant refused to do so.

In July 1981 the respondent sued the appellant in the Resident Magistrate's Court, Dodoma, for F eviction and was successful. The appellant appealed from that judgment to the High Court, but was unsuccessful; and he is now appealing to this Court.

It is common ground that the appellant became a statutory tenant after the expiration of the notice to quit served on him. The appellant could only be evicted under the provisions of the rent Restriction G Act, 1963, Cap. 479.

Briefly, the Resident Magistrate found that the respondent genuinely required the premises for his own occupation, and was intending to change the user of the premises from business to residential H purposes. He also found that the appellant had interests in two other eating houses in Dodoma, and he thought that the appellant could "amalgamate" his eating house business in the suit premises with those two other eating houses. It would seem that he was of the view that could constitute reasonable alternative accommodation. He concluded that it was reasonable to grant an I order for possession in terms of section 19(1)(e)(ii) of the Rent Restriction Act.

1984 TLR p124

MUSTAFA JA

On first appeal the judge (Lugakingira, J.) upheld the Resident Magistrate's decision. He dealt with A the two substantial grounds of appeal before him. They were:

(a) that the magistrate had erred in holding there was available reasonable alternative accommodation; B

(b) that the magistrate erred in holding that the respondent reasonably required the premises for residential purposes when the suit premises were for commercial purposes. C

The judge found as regards (b) above that there was nothing which restricts a landlord to use commercial premises only for commercial purposes upon regaining possession, and that "there is nothing unusual about commercial premises being converted into residential premises provided the necessary consents are obtained". He was satisfied that the respondent reasonably required the D premises.

As regards (a) above concerning the availability of reasonably equivalent alternative accommodation he held, on his reading of the provisions of section 19(2) and 19(1)(e)(ii) of the Rent E Restriction Act, on the issue of "reasonableness" and "hardship", that a court may order recovery of possession whether alternative accommodation is or is not immediately available.

In arguing the appeal before us Mr. Elmaamry for the appellant relied on two main grounds: F

1. that the judge erred in holding that the suit premises which are admittedly commercial were reasonably required by the landlord when he requires the same for residential purposes;

2. that the judge erred in holding that in ordering recovery of possession it is immaterial whether G alternative accommodation is available or not.

We will have to look at the sections of the Rent Restriction Act referred to: H

19. - (1) No order or judgment for recovery of possession of any premises to which this Act applies, or for the ejectment of a tenant therefrom, shall be made or given unless -

(a) ...

(b) ...

(d)... I

A (e) (i)in the case of a dwelling house, it is reasonably required by the landlord for occupation as a residence for himself or for his wife or children, or for any person bona fide residing, or to reside with him, or for B some person in his whole time employment or in the whole time employment of some tenant from him or for the occupation of the person who is entitled to the enjoyment of such dwelling house under a will or settlement and (except as otherwise provided by this section) the court is satisfied that alternative accommodation, reasonably equivalent, is available or will be available at the time that the order takes effect, C or that the tenant has built or owns a dwelling house suitable for his own accommodation which is available to him or would be so available but for his own act in disposing of the same, or

D (ii) in the case of commercial premises, they are reasonably required by the landlord and (except as otherwise provided by this section) the court is satisfied that alternative accommodation, reasonably equivalent, is available or will be available at the time that the order takes effect or that the tenant has built or E owns commercial premises suitable for his own accommodation which are available to him or would be so available but for his own act in disposing of the same;

F Provided that if within three months next after the date upon which the landlord obtains under the provisions of this paragraph vacant possession of such dwelling house or commercial premises he does not effectively occupy the same he shall give to the tenant who under the provisions of this paragraph was required to give up possession of such house or premises the first option to lease G and take possession of the said house or premises. If any landlord fails to give such possession he shall be guilty of an offence and shall be liable on conviction to a fine not exceeding two thousand shillings or to a term of imprisonment not exceeding six months or to both such fine and such imprisonment;

H 19. - (2) In any case arising under subsection (1), no order for the recovery of possession of premises shall be made unless the court is satisfied by or on behalf of the landlord that having regard to all the circumstances I of the case it is reasonable to make such an order and, where the order is sought on any of the grounds specified in paragraphs (c), (e), (h) and (l), that

unless such an order is made great hardship will be caused to the landlord. A

It will be seen in section 19(1)(e)(i) that reference is made to a dwelling house reasonably required by the landlord for occupation as a residence etc.; whereas in section 19(1)(e)(ii) that reference is made B to commercial premises which are reasonably required by the landlord, without restriction as to use. For the reasons which the judge gave we think that he was right in coming to the conclusion that C

a landlord may enter into occupation of premises under (section 19(1)(e)(ii) intending, as part of his enjoyment thereof to make alternations to the existing buildings or put up a wholly new building which he then proceeds to occupy. His occupation would be no less effective if it involved a change of user ... D

We reject this ground of appeal.

As regards the other ground of appeal, we think that it has merit. On this point we think that the judge erred. On a proper construction of sections 19(1)(e)(i) and (ii) and 19(2), we do not think that E alternative accommodation is immaterial if an order for possession is made. We think that no order for recovery should be made in this case unless-

(a) the premises were reasonably required by the landlord and F

(b) the court is satisfied that reasonable alternative occupation is or will be available (in accordance with section 19(1)(e)(ii)

(c) and the court is satisfied by or on behalf of the landlord that having regard to all the circumstances of the case it is reasonable to make the order and G

(d) that unless such an order is made great hardship will be caused to the landlord (in accordance with section 19(2)).

Indeed in our view the provisions of section 19(2) add a further burden to a landlord's recovery of H possession; we cannot agree with the judge that the provisions of section 19(2) obviate the need of finding alternative accommodation in this case. That is not strange, as rent restriction legislation is normally designed to protect tenants.

The question we have to decide is whether there was alternative accommodation here. Both the I courts below have held that the
1984 TLR p127
A premises were reasonably required by the landlord, that in all the circumstances it was reasonable to make the order, and that great hardship would be caused to the landlord unless such an order was made. We accept those concurrent findings.
B The trial magistrate had in effect held that the appellant had reasonable alternative accommodation in his other two eating house premises. The question is whether he was right in doing so.
We think that each case has to be decided on its own facts, and the alternative accommodation issue is basically a factual issue. Here the trial magistrate had viewed the suit premises, and he C concluded that the appellant could "amalgamate" his eating house business in the suit premises with the other eating house premises, Sabasaba and Arusha Hotels, in which the appellant has interests and shares and which he manages. That would, in the trial magistrate's words, accord D "within the spirit of socialism". The appellant is a resident of Dodoma for many years, whereas the respondent is a new-comer and in desperate need of accommodation. The business at the suit premises was closed at the time of the trial, and had been so closed for the previous 6 or 7 months.
The trial magistrate considered all these factors and concluded that the appellant had reasonable E alternative accommodation. There were some irrelevant factors taken into account by the trial magistrate, but there, nevertheless, was material for him to have come to his conclusion. In the peculiar circumstances of this case, we do not think we should interfere with that finding.
F In the result the appeal fails, and we dismiss it with costs.
Appeal dismissed.
1984 TLR p127
G
[zRPz]SANDHU CONSTRUCTION COMPANY LIMITED v PETER E.M. SHAYO 1984 TLR 127 (CA)

Court Court of Appeal of Tanzania - Arusha
Judge Mustafa JJA, Makame JJA and Kisanga JJA

August 13, 1984
H CIVIL APPEAL NO. 14 OF 1984
Flynote
Tort - Nuisance - Standard to be applied in determining degree of interference by nuisance to comfort or I convenience - Test of average man - Character of neighbourhood.
1984 TLR p128
MUSTAFA JA

Tort - Nuisance - When nuisance is actionable - Test of tolerance and acceptability of discomfort and A inconvenience.

-Headnote

The respondent had sued the appellant in private nuisance and prayed for an injunction to restrain the appellant from continuing the nuisance and for general damages. The respondent had alleged B that his enjoyment of his house situated at Elerai village in the Arusha Municipality was seriously interfered with by the excessive noise, vibrations and obnoxious dust emanating from a stone crusher operated by the appellant situated 30 metres from his house. The respondent himself had a C maize mill operating within the compound of his house. The respondent was successful in the High Court and it is against that decision that the appellant is appealing.

Held: (i) In considering the standard of comfort or convenience of living of the average man, the character of the neighbourhood must be taken into account; an average man's standard of comfort D and convenience involves the toleration of acts done by his neighbour in the course of ordinary and reasonable use of his property;

(ii) a nuisance to be actionable must be such as to be a real interference with the comfort or E convenience of living according to the standard of the average man; discomforts caused are not actionable if they fail to qualify as intolerable or unacceptable; the discomforts must cause suffering to the party complaining. F

Case Information

Appeal allowed.

No case referred to

C.M. Ngalo for the appellant

P.M. Jonathan for the respondent. G

[zJDz]Judgment

Mustafa, J.A. delivered the following judgment of the court: The respondent had sued the appellant (hereafter called Saccon) in private nuisance and prayed for an injunction to restrain Saccon from continuing the nuisance and for general damages. The respondent had alleged that his enjoyment H of his house situated at Elerai village in the Arusha municipality was seriously interfered with by the excessive noise, vibrations and obnoxious dust emanating rom a stone crusher operated by Saccon situated 30- metres from his house. The respondent himself has a maize mill operating within the I compound of his house.

1984 TLR p129

MUSTAFA JA

A The respondent succeeded in the High Court (Mwakibete, J.). He obtained an order restraining Saccon from continuing the stone crushing activities and shs. 25,000/= as general damages. From that decision Saccon has appealed.

B Elerai, according to a witness called by the trial judge, Land Officer Wiboga, is used both for residential and service industrial purposes. It is an unsurveyed area. Stone crushers are licensed to operate in Elerai. In fact, apart from the one operated by Saccon, there are three other stone crushers in Elerai.

C To establish his case, the respondent has to show that the interference with his enjoyment of his house and the inconvenience and injury caused him are real and sufficiently serious to constitute an actionable nuisance. In considering the standard of comfort or convenience of living of the average man, the character of the neighbourhood must be taken into account. An average man's standard of D comfort and convenience involves the toleration of acts done by his neighbour in the course of the ordinary and reasonable use of his property.

There can be no absolute standard to be applied; it is always a question of degree whether the E interference with comfort or convenience is serious enough to constitute an actionable nuisance in the circumstances of the case. A nuisance to be actionable must be such as to be a real interference with the comfort or convenience of living according to the standard of the average man. F Discomforts caused are not actionable if they fail to qualify as intolerable or unacceptable. The discomforts must cause suffering to the party complaining.

We will now deal with the facts as adduced in evidence at the trial. The respondent had alleged in his plaint that Saccon's stone crusher had been "causing considerable amount of noise, vibrations G and obnoxious dust to be blown on the plaintiff's residential house impregnating and polluting the air in and about the same", and that he and his family members have been "rendered unhappy and uncomfortable, and suffered great discomfort, inconvenience, disturbance and upset". The H respondent has therefore complained of noise, vibrations and obnoxious dust, and he must establish that one or all of those intangible invasions of his house had reached unacceptable or intolerable levels taking into account the local and environmental circumstances.

I In answer to the respondent's complaint, a team of experts comprised of D.W.3 Dr. Moshi, the Regional Medical Officer, Mr Lyimo the Regional Health Officer, Mr. Msei the Arusha Town

Health Officer and Dr. Bobe of the Occupational Health Services, visited the site and took readings A of sound levels. It was found that the stone crusher in normal full operation reaches 74 decibels, the same level as that reached by the grain mill of the respondent when in operation. When rock was being unloaded into the crusher, the level reached was 50 decibels. Ambient noise in an office B with tabulation machines would be 70 - 80 decibels. The team was of the opinion that the noise levels of the crusher are not unacceptable. The trial judge accepted that finding.

The team could not give an opinion concerning the volume of dust generated, as on their visit, no dust was generated by the working of the crusher because the atmosphere was damp. C

Mr. Jonathan, for the respondent, complained that the team did not take readings of noise levels when the stone crusher and the grain mill were working simultaneously. Dr. Moshi conceded that he overlooked this, but testified that there is a tendency of sound waves to engulf each other, the one D with high frequency tending to engulf the one with low frequency. The sound level of the two working simultaneously would presumably be higher, and could be irritating, depending on where one is positioned.

We are satisfied that as far as the noise factor is concerned the respondent has not established that E it was of an unacceptable level so as to constitute an actionable nuisance. The trial judge erred in finding, on pure speculation, that if the stone crusher and the grain mill were operating simultaneously, the sound level would have become intolerable. There was no such evidence, and F in any event, the respondent's complaint was about the sound level of the stone crusher.
We come to the other factor, that of vibrations. In his evidence, the respondent stated inter alia: G

"There are vibrations - including dust which is the more serious of the two. The dust comes directly onto my flour mill and my house".

That is the extent of his evidence concerning vibration. In any event the trial judge made no finding H on this aspect of the case, and we can find no cogent evidence concerning the volume or intensity of vibrations caused by the crusher so as to determine whether it reached intolerable limits.
As regards dust, a number of witnesses testified that dust was emitted from the stone crusher. I However, again no evidence was

A adduced as to the volume of dust emitted. It is not known whether the dust from the stone crusher is much more than that emitted from the grain mill, though probably the volume from the former would be greater. But we do not know whether it was so great as to be unacceptable. The B trial judge found that the stone crusher emitted dust, but he did not find whether the level emitted was intolerable. Indeed Mr. Jonathan in his address at the trial is alleged to have stated:-

C SHUMA crusher wrongly sited - too - a nuisance to those living in the neighbourhood including plaintiff. Thus SACCON additional nuisance.

That would seem to indicate that the respondent was complaining of dust from both the Saccon and D Shuma stone crushers, although the latter was situated 700 metres away while the former was only 30 metres.
There was an allegation that stone dust could bring about bronchitis, pneumocomiasis, and silicosis. However, expert evidence adduced indicated that dust does not cause bronchitis, but only acts as a E catalyst, whether it is stone dust or any other dust. Dust aggravates the inflammatory process. Dust which causes pneumocomiasis is dust which contains silicates and pneumocomiasis could be caused if iron oxide is isolated from dust. It seems no cases of pneumocomiasis or silicosis has ever F been recorded in Tanzania.
The trial judge would appear to have accepted this expert opinion. Then he proceeded as follows:

G ... I do not think I need call upon the plaintiff to produce evidence that Arusha stone dust contains silica or iron oxide. Nor do I think it prudent to demand evidence from the plaintiff to satisfy me that the process of stone crushing does produce silica and or iron oxide. As long as there is no dispute as to stone dust, with or H without silica or iron oxide, being a potential stone dust health hazard, and the other two diseases too being associated with stone dust - I feel

it sufficiently established that stone dust - including Arusha stone dust is a potential hazard ... In my view to be able to hold otherwise there must be clear evidence to suggest that the I stone dust has been tested but the tests have revealed no traces of silica or iron oxide. No such evidence was brought before the court. There was

no evidence to suggest that the process of stone crushing is incapable of producing silica or iron oxide ...". A

It seems that the trial judge has cast the onus on Saccon as defendant to establish that stone dust does not contain silica or iron oxide. The correct approach of course was for the respondent as B plaintiff to establish that the stone dust emitted by the stone crusher contained such ingredients. The trial judge seriously misdirected himself. Mr. Jonathan, rightly in our view, does not feel able to support the trial judge on this matter.

We readily agree that the stone dust must have caused the respondent inconvenience and C discomfort. But the respondent has decided to live in an area in which stone crushers operate. There was evidence that stone crushers have been in existence in that area since 1951. Shuma stone crusher was allegedly situated only 15 metres from some residential houses. By living in Elerai the D respondent must be presumed to have agreed to tolerate acts of his neighbours in carrying out their normal and reasonable activities. As far as we can see, Saccon was carrying out its normal activities in operating its stone crusher, and the respondent, in the circumstances, must suffer the resulting discomfort from the stone crusher. If however there was evidence that the noise, hazards to health E or dust volume had reached intolerable or unacceptable levels, then such invasions would constitute an actionable nuisance. But in this case no sufficient evidence has been forthcoming. What the respondent has suffered would seem to be the usual and normal incidents attached to F living in Elerai under present conditions. If the character of the area changes, perhaps dust emitted from a stone crusher would be an actionable nuisance. But in Elerai, it seems that the time is not yet.

Mr. Ngalo for Saccon has also attacked the award of general damages. In the view we take of the G appeal, it is not necessary for us to deal with that matter.

We allow the appeal, set aside the judgment and decree of the High Court, and substitute therefor an order dismissing the claim. We award costs to the appellant Saccon both here and below. H

Appeal allowed. I

[zRPz]ABDULRAHMAN SALIM MSANGI v MUNIRA MARGARET 1984 TLR 133 (HC)

Court Court of Appeal of Tanzania - Mwanza
Judge Nyalali CJ, Mustafa JJA and Kisanga JJA

January 17, 1983

B H.C. APPEAL NO. 37 OF 1983

Flynote

C Family Law - Dissolution of Islamic marriage - Issue of custody of children upon dissolution of marriage under Islamic law.

-Headnote

The appellant and respondent were married in 1975 according to Moslem rites and their marriage was dissolved in 1982 by Islamic 'talaks' effected by the appellant upon the respondent. The respondent was granted the custody of two children of the marriage aged two and five by the Kadhi's court in Zanzibar. The appellant now objects to the grant of custody of children to the respondent.

D Held: According to Islamic law infants who have not yet attained the age of some understanding, which is usually taken to be seven, are left in the custody of their mothers provided they satisfy the following seven conditions.

E (a) the mother must be of sound mind;
(b) she is a free woman, not a slave;
(c) she should have a religion (Islam);
(d) she should have the ability to bring up children;
(e) she should be faithful;
F (f) she has to be single, and lastly
(g) she must have a domicile.

Case Information

Order accordingly.

G Cases referred to:

1. Kassam Ladha v Khatija binti Abdallah Shariff, 1 Z.L.R 98.
2. Kassim bin Mohammed Barwani v Awadh bin Salim bin Awadh 8 Z.L.R. 24.
3. Suleiman Ali Doongersi v Sherrobinti Kanji 1 Z.L.R. 251.

H 4. Fakir Adam v Suleiman Athuman Swahili and (2) Mama Assora 1 Z.L.R. 282.
5. Saleh Mohamed Sachoo v Jenabai binti Dhala Versi 4 Z.L.R. 67.

I 6. Mohamedali Issaji Bohora v Bachuli binti Karimjee H.C. Civ Appeal No. 16 of 1938.

1984 TLR p134

MUSTAFA JA

7. Salem bin Yeslum v Nuru binti Ahmed & Another 3 Z.L.R. 49. A
8. Salum v Asumini [1969] E.A. 255.

[zJDz]Judgment

Ramadhani, C.J.: The appellant, Abdulrahman, and the respondent, Munira were man and wife who are now divorced. They were married since 1975 and on 30th October, 1982 the appellant wrote out B three talaks divorcing the respondent. Official divorce was prepared some time later. I did not have the opportunity to see that one but it was not necessary for the purpose of this judgment. From the pleadings in the Kadhi's Court it is evident that the appellant was

granted the custody of C their two children under the arrangement of the official divorce. These two children are Kheri aged five and Mustafa aged two. Both are boys.

The respondent, Munira, filed a suit before the Kadhi, Sh. Ameir Tajo, Civil Case No. 141/82. She made three claims: first, that she be granted the custody of the two children as they are infants still; D second, that she be paid the sum of Shs. 450/= per month for the period of her iddat, and that she be given accommodation for the duration of her iddat. Shk. Ameir Tajo decided the first and the third issue in favour of the plaintiff, Munira (now the respondent). The Kadhi decided the second E issue against her on the ground that as she has been given three talaks she is not entitled to maintenance.

The appellant now objects to the grant of custody of the children to the respondent. The appellant has said nothing regarding the maintenance of the children if the custody is granted to the F respondent. Likewise, the appellant has not objected to the order of providing accommodation to the respondent. On the other hand the respondent has not objected to the order of not giving her any maintenance during her iddat. Thus the appeal is solely on the issue of custody of children only. G

In entertaining this appeal I invited two Sheikhs to advise me. These are Shk. Mussa Makungi, the Principal of the Islamic School, and Shk. Hamdani Muhiddin. I asked both parties and none objected to either of the two Sheikhs as assessors. They are my advisors. Therefore I did not require them to H give their opinion in the open court. They did so in private. There has been a long practice in this High Court to obtain such advice in appeals of cases involving Islamic Law. In the case of Kassam Ladha v Khatija bint Abdalla Sheriff Z.L.R. 98 Cracknall J. said: I

A ... in recent conversation with a leading local Kadhi he expressed the view that ...

Similarly Sir John Gray, C.J. in Kassim bin Mohammed Barwani v Awadh bin Salim bin Awadh 8 Z.L.R. 24 at page 27 said:

B I have had the advantage of being able to consult the learned Senior Kathi, Seyyid Omar bin Ahmed bin Sumeit of the Shafei School on this matter and he is of the opinion that ...

C There are a number of cases before my predecessors where similar consultation took place. Therefore I do not think that I have erred in getting their opinion. In fact I feel that it has been just as well that I have obtained the opinion from people who are not objected to by the parties and after D the Sheikhs themselves have heard the whole appeal. However, even if I have erred in not treating the two Sheikhs as assessors, which I think I have not, still this judgment is not based on their advice only but on several authorities of this Court on matters of custody.

E The appellant has given nine grounds of appeal. First, that the respondent was a Christian but converted to Islam upon marriage, hence there is a likelihood that she might re-embrace her Christian faith again and as such she cannot properly bring up the two boys according to Islamic rites. Second, that the appellant has a long experience of bringing-up children as his first wife died leaving F him with six children. Thirdly, that if the appellant is granted custody the two boys will be in the company of those other six children. Fourth, that the respondent is not good in upbringing of children. He has given several reasons to prove this allegation. First, the

appellant said that the G respondent was entrusting the care of the infants to a paid nurse during working hours and even after office hours she would go on her own ways. The appellant when he had returned from Ethiopia found Kheri in an unsatisfactory condition. Secondly the respondent has drinking habits and that H she had even requested to be sent a bottle of brandy when the appellant was in Ethiopia. Thirdly, the respondent has been interfering when the appellant was helping Kheri in reading. Fourthly, before the divorce the respondent had said that she will do all possible to make the two boys hate the appellant. Fifthly, the respondent works in the hospital and she is at times on night duties hence I she cannot give proper care to the children in those circumstances. Sixth, that the respondent has already been transferred to Dar es Salaam hence she would be

taking the children away from the jurisdiction of this Court. Seventh, that it is not true that the A respondent was paying school fees for Kheri at the rate of Shs. 60/= per month because the appellant used to send to her up to Shs. 3,000/= per month while he was in Ethiopia. Eight, that the appellant's going to Ethiopia was due to the call of duty and not because he had failed to look after the children. Lastly, for all the period in which the respondent had custody of the children he has B not been able to see them. Various excuses have been put-up to prevent him access to the children.

The respondent has said as follows: First, as to religion the respondent has said that the appellant himself does not impart any religious instructions or life style to the children. The appellant does C not look after the religious upbringing even of the other older children. For example, he does not send them to religious schools. The respondent said that she was herself undergoing religious instruction. The respondent also pointed out the ways in which her own divorce was against the D Islamic Law as evidence of the appellant's religious indifference. However, these are not relevant to the issue before me and hence I do not deem it necessary to recount them. The respondent has, therefore, asked that religion is a non-issue. Second, regarding the issue of up-bringing of the E children, the respondent has said that she also has a long experience. She said that barely three years after the death of the first wife of the appellant she (the respondent) got married to the appellant. So she has helped him bring up the children for eight years. Apart from the care of the children of the appellant by his first marriage and her own two children, the respondent had taken F care of her own young brothers and sisters before she married. The respondent has objected to the claim that these two children will be in the company of their half-sisters. The respondent has said that only two of the half-sisters are currently at home and then they will soon get married and in any G case plans are under way to sent them to the mainland for schooling. But apart from that, the respondent has submitted that, the half-sisters can never have a better right to the children than she, the natural mother. The respondent has added that the circumstances at the appellant's home are not good and pitiful. However, she did not want to elaborate lest to embarrass the appellant. Then H the respondent has said that if she was incapable of looking after children properly it is obvious that the appellant would not have entrusted her with that when he left for two years in Ethiopia, when he left her not only

with these two boys whose custody is in dispute but also with his own I daughters. At the time the appellant left for Ethiopia
1984 TLR p137
MUSTAFA JA
A they had been married for six years, hence the appellant knew the ability of the respondent in taking care of the children. As for the drinking habits the respondent has put the appellant to strict proof of the allegation. The respondent has admitted that during working hours the children are B under the care of a paid nurse. But after office hours she is at home with the children and the nurse goes home. The nurse was not residing within the premises. Only for six months did they have a nurse who resided with them in the house and at that time the respondent was receiving tailoring instructions. The respondent did this after the appellant had given his consent. The respondent C showed a letter from the appellant while he was in Ethiopia as proof of this. After the instructions in tailoring the respondent attended cookery classes. Thus the respondent has denied the allegations that after office hours she went her own ways. All that the respondent did was to allow Kheri to go D to play with the children of the neighbours just like other children. The respondent also admitted that she works in the hospital but added that since 1978 she has never been on a night duty. But besides that when the appellant married he knew of these facts and therefore the question of night E duties is not new. She added that many mothers who are employed with the armed forces, for instance, have night duties. The important thing, she said, was to have a reliable person to be with the children at night when, as a matter of fact, they do not need any care as they are fast asleep. In the day time the mother returns home and she is able to be with the children at the time when they F really need care. As for the sixth ground the respondent has admitted that she has been transferred to Dar es Salaam. However she had pointed out that Tanzania is one country and that the Court orders of one part of the Republic can be executed in the other part. Moreover, both the respondent G and the appellant are not domiciled in Zanzibar. The appellant came because of employment and the respondent followed her husband. A day will come when the appellant will have to return to the Mainland too. In addition the marriage was celebrated on the Mainland while the divorce was H granted in Zanzibar. Likewise the Zanzibar Court may grant her custody of the children while she will stay with them on the Mainland. The respondent has refuted the allegation that she was paying school fees for Kheri out of the Shs.3,000/= that was sent by the appellant. She agreed that amount was being sent but with special instructions as to its use. She added that even after the appellant I returned from Ethiopia she continued paying the fees. The respondent also said that she was the one who was paying the wages of their servant
1984 TLR p138
MUSTAFA JA
which was Shs.350/= per month. Lastly on the question of access the respondent has claimed that A the appellant himself causes uncalled for misunderstanding. Once the appellant wanted the children on a Sunday. The respondent suggested Monday since Sundays are the only days she can be at home with the children the whole day. The appellant became angry at the

suggestion and left. The other time the appellant went to fetch the children when they were asleep. The respondent B hesitated to wake them up as that would only make them troublesome. So she suggested to the appellant that he go into the house and wait for them to wake up or else he could return for them afterwards. The appellant rejected both suggestions and instead waited outside. Within a very C short time of waiting he got fed-up and left. The respondent added that whether she likes it or not the appellant is the father of the children and there is no way in which she could deny him access to them.

Sheikh Hamdani asked the appellant what signs makes him think that the respondent will re-embrace D the Christian faith. The appellant replied that the respondent since after marriage did not make any efforts to study Islam and added that the respondent actually converted not because of conviction but for convenience so as to marry. Shk. Hamdani wanted to know what steps the E appellant took to give instruction to the respondent on Islam. The appellant replied that he bought some Islamic books for her to read and made her observe the fast in the Holy Month of Ramadhani.

The respondent also was questioned by Shk. Hamdani whether she knew of the conditions of giving custody to a mother. The respondent replied that she was aware that there were such F conditions but was not aware of what they were. Shk. Makungu wanted the respondent to elucidate on her statement that the appellant would one day go back to the Mainland. The respondent said that both she and the appellant belong to the Pare tribe from Kilimanjaro Region. The only G difference is that they come from different districts: the respondent hails from Same while the appellant comes from Usangi but otherwise they speak the same language. She added that the appellant came to Zanzibar because of employment only. H

The Sheikhs gave me their opinion in private, as I have already said. They said that according to Islamic Law infants who have not yet attained the age of some understanding, which is usually taken to be seven, are left in the custody of their mothers provided they satisfy the following seven conditions. First, the mother must be of sound mind. Second, she is to be a free woman, not a slave. I Third,

A she should have a religion (Islam). Fourth, she should have the ability to bring-up children. Fifth, she should be faithful. Sixth, she has to be single and lastly, she must have a domicile.

Both Sheikhs are in agreement that there are problems with only three of the conditions: religion, B marital status and residence. As for religion the Sheikhs were of the same opinion that it is irrelevant for the time being until such time as the respondent reverts to Christianity. Shk. Mussa Makungu added that there are mere suspicions that she will revert but no reasons were given to support them. C Shk. Hamdani added that lack of knowledge of Islam on the part of the respondent is due to the fault of the appellant who took no pains to instruct her on the same. Moreover, the respondent herself has stated that she is now undergoing religious instruction.

The Sheikhs are agreed that should the respondent re-marry her right of custody will cease and it D will be granted to the appellant. Finally the Sheikhs were agreed again on the issue of

domicile. Both the appellant and the respondents are domiciled on the Mainland. They are in Zanzibar just for a while.

The opinion of Shk. Hamdani and Shk. Mussa is that the custody be given to the respondent until E each child attains the age of seven when the preference of each child will be taken as to with whom he will stay. However, the right to custody will cease if the respondent renounces Islam or if she re-marries.

As I have said previously I had asked the Sheikhs for their opinion. However, the decision is on the F Court. I have, therefore, to look into the facts of the matter and the law applicable.

The issue before me is: who between the appellant and the respondent be given the custody of the two boys aged 5 and 2 now that the parties are divorced. I have first of all to determine what is the Islamic Law as applied by this Court in such cases as this.

G The first case I have managed to obtain on custody is that of Kassam Ladha v Khatija binti Abdallah Shariff 1 Z.L.R. 98. This case was in 1900. Cracknall J. decided that according to the Shiaite Law a mother has a right to the custody of her daughter until she attains the age of seven. H She has that right even after the daughter has attained the age of seven provided that the woman does not re-marry. At the age of seven the wishes of the child are paramount.

Then there was the case of Suleiman Ali Doongersi v Sherro binti Kanji 1 Z.L.R. 251. This was in 1906. It was also on Shiaite Law. Lindsey Smith, C.J. following the judgment of Cracknall, J. in the I already cited case, had this to say at page 253:

1984 TLR p140

MUSTAFA JA

... it is a principle of Mohammedan Law that when it is a question of deciding upon the lot of a child of A divorced parents the most important point to consider is the interest of the child itself...

In the case of Fakir Adam v Suleiman Athman Swahili and (2) Mama Assora 1 Z.L.R. 282, Murison, B J. decided that according to Sunni Law a divorced woman has the right to the custody of her daughter up to the time of puberty and beyond if that is in the interest of the child. The learned judge following the above two cited cases added that: C

The parties on each of these cases were Shias, but the decision was to the same effect as this judgment. I ought, perhaps, to add that Sheikh Smit, who is probably the best authority on Mohammedan Law in Zanzibar, gave it to me as his opinion that upon the question of `hizamit' [custody] there is no difference between Shia D and Sunni Law ...

A similar decision as the above three cited cases was made by Doorly, AG. C.J. in the case of Saleh Mohamed Sachoo v Jenabai binti Dhala Versi 4 Z.L.R. 67. E

In all these four cases the issue was regarding daughters but here it is sons. But the law seems to be the same regarding sons. In The Principles of Mohammedan Law by D.F. Mulla (14th ed.) at page 295 it is stated that a son is looked after by his mother until the age of seven. Hedaya (Hamilton's F Translation) at page 138; A Manual of the Law of Marriage by Russel and Suhrawardy at page 320; and Muhammedan Law (An Abridgement) by Fitzgerald (1931) at 99 and 100 all give the right of custody of an infant boy to its mother. I believe it is because of this

same law that Shk. Ameir Tajo G gave the custody of these two boys to the respondent and that even Sheikhs Hamdani and Mussa have so advised me, as already said.

Lindsey Smith, C.J. in Dongersi v Kanji, already cited, at page 253 said: H

As Judge Cracknall was Chief Judge here for twenty years, his decision is entitled to great respect and sitting as a Judge of equal jurisdiction I do not think I ought to dissent from his decision. I

1984 TLR p141

MUSTAFA JA

A Likewise Doorly, Ag. C.J. in the case of Sachoo v Versi (already cited above), after referring to the cases of Ladha v Sheriff and Doongersi v Kanji, said at page 68:

The learned Judges, my predecessors, went carefully into the authorities, and I am not prepared to disturb (and B I have no desire to do so) a decision which has been the law of Zanzibar for over thirty years.

C The learned Ag. Chief Justice said that in 1929. I am duty bound, I am convinced, that I too should concur with their lordships and that I should not disturb the decision which has been the law of this country and this High Court for over eighty years now.

Thus deducing from the cases I have cited, and also the expositions of the various learned authors I D have referred to, the Islamic Law applicable in these Islands regarding the custody of children is that it is granted to the mother until the child attains the age of seven years when its wishes are taken into consideration.

However, there are certain conditions precedent to this grant of custody to the mother. The E appellant has given a number of grounds supporting his objection. I can conveniently put them into three groups. First, it has been argued that the respondent is of unsatisfactory conduct and does not deserve being granted custody of the children. Second, the respondent might renounce Islamic faith and hence cannot bring-up the boys as Muslims. Third, the respondent will not reside in the F Islands and hence she will take away the boys from the jurisdiction of this High Court.

As for the first group of objections, no evidence was tendered to support the allegation that the respondent is a drunkard, she is a loiteror and that as a whole she is not fit to be given such G custody. The respondent herself has denounced these allegations of the appellant. Apart from that if the allegations are true it is difficult to comprehend how the appellant dared to leave the respondent with the custody of all the children for two years while he was on duty in Ethiopia. H Moreover the appellant did not point out any thing he found wrong with the children on his return home.

Let me now turn to the ground of religion. As the learned Sheikhs said this is a mere suspicion. There is not a jot of evidence that the respondent will renounce Islam. In the case of Mohamedali I Issanji Bohora v Bachuli binti Karimjee, High Court Civil Appeal No. 16 of 1938, Law, C.J. had this to say:

1984 TLR p142

MUSTAFA JA

In the interest of children safeguards have been provided. Parents may be deprived of that custody for A misconduct. The misconduct alleged by the Appellant is that the Respondent is not bringing up the children as Bohoras.

Of this there is really no evidence. On the other hand, the Respondent says that the children follow the B Bohora religion and go to Mosque. Although the Respondent admittedly is living in a Comorian Community, this has not prevented her from doing her duty towards her children. C

According to the above quoted words a mother still retains her right of custody even when she lives within a Community of a completely different religious denomination provided that she brings up the children in accordance with their own denomination. The case is even stronger where the mother is D of the same denomination except that there is some suspicion that she might change. As for this ground I am in agreement with the Sheikhs that when the respondent renounces Islam then her right of custody will cease.

Lastly is the question of domicile. The respondent has admitted that she is being transferred to Dar es Salaam. The case of Salem bin Islam v Gnawer banti Aimed and Another 3 Z.L.R. 49 is on all E fours with the present one. In that case the plaintiff and the First Defendant had been married and were living in Mombasa. They divorced and the First Defendant came P. 589 to Zanzibar with their infant daughter. The First Defendant gave the infant to her sister, the Second defendant, to bring F her up. Both defendants were married to other men. The Plaintiff sought the custody of the daughter who was of the age of four at the time. The custody was granted to the Plaintiff by the Kadhi. The defendants appealed to the High Court on the grounds that the Plaintiff will take away G the child from the jurisdiction of this Court. Tomlinson, C.J. and Doorly, J. said at page 50:

With regard to the first point raised in this appeal which is to the effect that the Kadhi, ought not to have given the custody to the father knowing that he intended to leave the jurisdiction of the Court, we H are of the opinion that there is no substance in the contention. The marriage and subsequent divorce as well as the birth of the child took place on the mainland and, as far as we can see from the evidence, the plaintiff lives and carries on his trade on the mainland and is a stranger in Zanzibar. I

A In fact it seems to us that it was the mother who removed the child from the place of conjugal domicile and the intended removal by the plaintiff is only a return to its original home."

B In the present case the parties married on the Mainland and there is their domicile in fact. It is true that the divorce proceedings took place in Zanzibar. But they came to Zanzibar simply because of duty and not to change their domicile. Hence for the respondent to go with the children to the Mainland, just as it was in the case I have just cited, is not really taking them away from the C jurisdiction of this Court but in fact she is taking them back to their original and natural home.

However, should I have erred in holding as I do, then under Article 70 of the Constitution of the United Republic of Tanzania of 1977 and Article 55 of the Constitution of the Revolutionary D Government of Zanzibar of 1979 a procedure has been outlined to enable the Courts of the two parts of the Republic to execute orders of each other in their respective jurisdictions.

May be I should just add that even the High Court of Tanzania has the same stand that the custody E of a child is with the mother until the age of seven and in general the welfare of the child should be taken into account. This was the decision of Seaton, J. as he then was, in the case of Salum v Asumini [1969] E.A. 255.

I should point out here that the parties have put up various submissions as mentioned, some of F which I have not discussed. I have merely dealt with those material to the determination of the present appeal.

Therefore, according to the Law of Zanzibar, including the advice of the Sheikhs I am in agreement with the judgment of the Senior Kadhi, Shk. Ameir Tajo, for the reasons I have mentioned above. G The custody of the children Kheri and Mustapha is given to the respondent, Munira, until each of the boys attains the age of seven and then the wishes of the children will be taken into account as to future custody. The respondent will forfeit this right only if she re-marries or if she renounces H Islamic faith. The appellant has access to the children. For the time being he should provide for them.

Order accordingly.

1984 TLR p144

A

[zRPz]DR. C. MHINA v NATALIA M. MHINA 1984 TLR 144 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Mustafa JJA and Kisanga JJA

September 17, 1984

CIVIL APPEAL NO. 16 OF 1984

Flynote

Family law - Custody of Children - Whether allegation of emergency situation has to exist before a B pendente lite order for custody of children.

Family Law - Maintenance of spouse - When court is empowered to make interim order of maintenance. C

-Headnote

The respondent in this appeal had filed a petition for dissolution of her marriage with the appellant and for other reliefs. After the petition had been filed she filed a chamber application supported by an affidavit seeking custody of the children of the marriage and maintenance pendente lite for herself and the children. The trial judge ruled that there were no exceptional circumstances to D warrant the court to make an interim order of custody but granted a maintenance order for the respondent and child. The present appeal is against that ruling. E

Held:An interim order for maintenance should only be made upon hearing both parties.
Case Information
Appeal allowed.
No case referred to. F
R.C. Kesaria for the appellant
M.A. Lakha for the respondent
[zJDz]Judgment
Mustafa, J.A. delivered the following judgment of the court: G
The respondent in this appeal had filed a petition for dissolution of her marriage with the appellant and for other reliefs. After the petition had been filed she filed a chamber application supported by H an affidavit seeking custody of the children of the marriage and maintenance pendente lite for herself and the children.
The application was opposed by the appellant, who filed an affidavit in reply. The application came before the High Court (Mnzavas, J.K.). Mr. Lakha, who has appeared for the appellant I
1984 TLR p145
MUSTAFA JA
A before us also appeared for him at that interlocutory application. He raised a preliminary objection, submitting that as there was no allegation of any emergency situation necessitating an interim order for custody, no order for custody could lie as it was an issue to be decided at the B hearing of the petition. As regards the issue of maintenance he submitted that there was no material before the Court for it to make decision on that matter. He asked for the dismissal of the application.
Mr. Kesaria for the appellant submitted, as he has also done before us, that the court was C empowered by certain of the provisions of the Law of Marriage Act, 1971, to deal with the issues of custody and maintenance in terms of the application filed by the wife.
In his ruling the trial judge held that he could see no exceptional circumstances to warrant a court making an interim order of custody. However, he held that the respondent should pay the wife and D the child who is in her custody shs. 1,200/= per month pending determination of the petition.
Mr. Lakha has attacked that ruling. He submitted that the trial judge should have confined his ruling to the preliminary objection he had raised, and should not have dealt with the merits of the E application at that stage. He complained that his client had in fact been condemned unheard. In our view the judge should have either upheld or rejected the preliminary objection, and if he rejected it, then it was then for the parties to argue the application on the merits. In that event either party F would have had the opportunity of presenting facts and evidence, if any, before the court for it to make a decision.
We agree with Mr. Kesaria that the trial judge was empowered to make an interim order for maintenance, but he should do so only after hearing the parties. Here the argument before him was G on the preliminary objection raised by Mr. Lakha as to the maintainability of the application. He should have confined his ruling to that issue at that stage. However, he went

further, and decided the issue of maintenance without giving the appellant an opportunity of presenting his arguments H and evidence on the matter in controversy. That is clearly in error. In the circumstances we allow the appeal and set aside the interim order for maintenance. We make no order as to costs.

I Appeal allowed.

1984 TLR p146

A

[zRPz]FOREIGN MISSION BOARD OF THE SOUTHERN BAPTIST CONVENTION v ALEXANDER PANOMARITIS 1984 TLR 146 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Mustafa JJA, Makame JJA and Kisanga JJA

June 29, 1984

CIVIL APPLICATION 4 OF 1984 B

Flynote

Civil Practice and Procedure - Court of Appeal Rules - Notice of appeal, application for leave to appeal and application for a certified copy of the proceedings of the High Court filed within prescribed time - C Inordinate delay by the Court to furnish respondent with a copy of proceedings - Application to strike out notice of appeal due to the delay to prosecute the appeal - Whether application may be granted -Rule 82 of the Rules of the Court of Appeal, 1979. D

-Headnote

The respondent filed a notice of appeal, an application for leave to appeal and an application for a certified copy of the proceedings of the High Court within prescribed time. However there was inordinate delay by the High Court to furnish him with a copy of the proceedings. This prompted E the applicant to file a notice of motion to strike out the notice of appeal on the ground that the respondent had failed to institute and prosecute his appeal.

Held: Since the inordinate delay in furnishing a certified copy of the proceedings of the High Court F cannot be blamed on the respondent no cause of action existed on his part to bar him from instituting and prosecuting his appeal.

Case Information

Application dismissed. G

No case referred to

F.H. Uzanda for the applicant

T.J.R. Tarimo for the respondent

[zJDz]Judgment

Mustafa, J.A. gave the following ruling of the court: This is an application by the applicant to strike H out the notice of appeal filed by the respondent arising from a civil revision matter No. 9 of 1980 in the High Court. The notice of motion to strike out alleged that no appeal lies or that

essential steps in the proceedings have not been taken or taken within the prescribed time, in terms of the I provisions of Rule 82 of the Rules of the Court of Appeal.
1984 TLR p147
MUSTAFA JA
A The order of the High Court was made on 26.5.1981. The respondent filed a notice of appeal within 6 days of the ruling, an application for leave to appeal within 9 days and for a certified copy of the proceedings of the High Court within 10 days. All those steps were taken well within the prescribed time.
B However up to 1.2.84 when the appliction to strike out was filed, no record of appeal had been filed, and Mr. Uzanda for the applicant submitted that the inordinate delay was and must have been due to the failure of the respondent to take steps to institute and prosecute his appeal within the C prescribed time in terms of Rule 83 of the Court of Appeal Rules. For the failure of the respondent to take proper and effective steps to institute and prosecute his appeal, the applicant asks for his application to strike out to be granted.
Mr. Tarimo submitted that the proceedings copy was not available for collection by him until 11.2.84 D when he was informed by the court that the proceedings were ready for collection, and he collected the copy of proceedings on 16.2.84. In his affidavit he referred to a meeting with the Chief Justice in which Mr. Uzanda was also present on 21.11.83 when the Registrar of the High Court was E directed by the Chief Justice to provide the respondent with a copy of the proceedings as soon as possible.
We are satisifed, that for reasons beyond the control of the respondent, the copy of proceedings was not ready for collection until 11.2.84. The court must bear the blame for this long and F unexplained delay in furnishing a certified copy of the proceedings. There was a letter on the court record from the Registrar to the respondent dated 10.2.84 which excluded the days (over 900 odd days) taken for the preparation of the copy of proceedings. In view of that letter the respondent had 60 days from 20.2.84 to file his record of appeal, i.e. by about 20.4.84.
G When the application to strike out was filed on 1.2.84, the respondent could not be blamed for the delay, as the court up to that date was unable to furnish him with a certified copy of the proceedings. In our view, the application was filed prematurely, as on the 1st February, 1984, no H cause of action existed for any delay on the part of the respondent to institute and prosecute his appeal.
We are not concerned with the situation after the furnishing of the certified copy of the proceedings to the respondent in this application. That will no doubt be dealt with when the matter arises for I decision.
1984 TLR p148
However this application has to be dismissed, and we so dismiss it with costs. A
Application dismissed
1984 TLR p148
B
[zRPz]REPUBLIC v SAMWEL SHEPUA 1984 TLR 148 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

August 5, 1983
CRIMINAL REVISION 12 OF 1983 C
Flynote
Road Traffic - Causing bodily injury through dangerous driving - Road Traffic Act 1973 ss. 40(1) and D 63(2)(a) - Circumstances constituting the offence.
Road Traffic - Causing bodily injury through dangerous driving - Whether disqualification from driving mandatory.
Criminal Law -Mens rea - Whether necessary on a charge of dangerous driving causing bodily harm under E s.s 40(1) and 42(1)(b) of the Road Traffic Act 1973.
Road Traffic - Requirement to report accident within twelve hours - Whether absolute - Road Traffic Act 1973, s.52(2)(b).
Criminal Practice and Procedure - Charges - Charge of causing bodily injury through dangerous driving F brought under s. 42(1)(b) instead of s.40(1) of the Road Traffic Act 1973 - Defective.
-Headnote
The respondent was convicted on his own plea of guilty to two charges. The first offence was causing bodily injury through dangerous driving. The second, as failure to report an accident G contrary to sections 57(2)(b) and 63(2)(d) of the Road Traffic Act 1973. The trial court did not order cancellation of the driving licence. In mitigation the respondent had pleaded before the trial court lack of intention to commit the offence. In the exercise of its revisionary powers the High Court had H the following issues to consider:
First whether the charge of causing bodily injury through dangerous driving could be brought under ss. 42(1)(b) of the Road Traffic Act 1973. Second, whether on a conviction for causing bodily harm through dangerous driving, the court has any discretion to order or not to order the cancellation of a I driving licence. Third, whether
1984 TLR p149
MUSTAFA JA
A intention to drive dangerously is a necessary ingredient of the offence of dangerous driving; and fourth, whether the requirement to report an accident within twelve hours is absolute.
B Held: (i) Where bodily injury is caused as a result of dangerous driving the charge must be brought under sections 40(1) and 63(2)(a) of the Road Traffic Act 1973;
(ii) on conviction under sections 40 or 42 of the Road Traffic Act 1973 cancellation of the driving licence is mandatory; court has discretion only as regards the period of cancellation;
C (iii) on conviction under Ss. 40 and 42 of the Road Traffic Act 1973 a court has discretion to disqualify a driver from obtaining a licence for three years or a shorter period, or not to disqualify him at all;
D (iv) mens rea is not a requisite ingredient of the offence of causing bodily injury through dangerous driving under section 40 of the Road Traffic Act;

(v) the requirement for reporting an accident within twelve hours under section 15(2)(b) is absolute except only where the driver is physically incapacitated by the accident.

Case Information

E Conviction upheld.

V. Lyimo for the Republic.

[zJDz]Judgment

F Lugakingira, J.: In this case the accused was charged on two counts under the Road Traffic Act, 1973. The first count alleged causing bodily injury through dangerous driving and was laid under ss. 42 (1)(b) and 63(2) (b). The second count alleged failure to report an accident c/ss 57 (2) (b) and G 63 (2) (d). The accused was on both counts convicted on his own pleas of guilty and fined accordingly. I was not happy with some features of the case and admitted it to revision.

The first count was laid under s. 42 (1) (b) but, as the framing of the provision indicates, it has H nothing to do with dangerous driving in which bodily injury is caused. It is concerned only with dangerous driving per se. Where bodily injury is in fact caused as a result of dangerous driving the appropriate provision is s. 40 (1) and the penalty provision is s. 63 (2) (a). Further, whether a person I is convicted under s. 42 or s. 40 the law requires that his driving licence shall be cancelled and the person shall be disqualified from obtaining any driving licence for a period of not less than three years, unless

for special reasons the court thinks it fit to order otherwise. It seems, however, that the court's A discretion as regards cancellation or suspension of the licence is exercisable only as to the period of such cancellation or suspension but cannot be exercised to dispense with cancellation or suspension altogether. It is only with regard to disqualification that the court may elect to make no order. There was no order of cancellation or disqualification in this case and there was no reference B to these matters. But while bringing these irregularities to the attention of the learned trial magistrate, I do not propose to make any order or issue any directions having regard to the simple and even the unknown facts of the case as a whole.

It was also noted that in mitigation the accused said that he did not intend to commit the offence but C that it was purely accidental. Whether that meant that he did not intend to drive dangerously or to cause injury, I do not know; but probably he meant both. Well, all accidents are, I suppose, accidental. I agree with Mr. Lyimo that in a charge of causing bodly injury through dangerous D driving the law does not look to the driver's mind but it looks to his style, having regard to the circumstances obtaining at the time. It is the fact of dangerous driving which is the basis of liability. Once it is established that on the facts and circumstances of the case the driver's style was uncalled E for, he cannot escape the consequences of that style. His culpability lies in the abuse or non-use of his talents and not on any wish or non-wish in his mind. I am therefore of the view that the mitigation in this case did not vitiate the plea.

With regard to the second count the facts were that the accused reported the accident five days F after it had occurred. My problem was whether he could have reported it earlier since there

was no indication as to how far the scene of accident was from the nearest police station. But after studying s. 57 (2) (b) carefully, it seems that the problem does not arise. The provision states that in the case G of an accident such as the accused was involved in the driver has to report the same "as soon as reasonably practicable and in any case not later than twelve hours" after the time it occurred, unless he is incapable of doing so by reason of his own injuries. Having regard to the words I have emphasised, it is evident that the provision is strict and leaves no room for manoeuvre save where H the driver is physically incapacitated. The accused did not allege such incapacitation; that being the case his conviction was justified in law. All in all, I make no orders.

Conviction upheld. I

1984 TLR p151

A

[zRPz]SAFIEL MRISHO v REPUBLIC 1984 TLR 151 (HC)

Court High Court of Tanzania - Dodoma

Judge D'Souza Ag J

August 13, 1984

B CRIMINAL APPEAL 40 OF 1983

Flynote

Evidence - Admissions - Words spoken by an accused in his plea of guilty to one count - Whether such words can be used in evidence against him.

-Headnote

C The defence put forward for the first time at the trial was that the vehicle had been driven by another person on the same day. The appellant admitted however, the offence of driving the said motor vehicle on the public road with defects.

D On appeal the issue was whether the accused's plea of guilty to driving a motor vehicle with defects could be used as evidence to the charge of causing death through careless driving.

Held: Words spoken by an accused in his plea count can be used as evidence against him.

Case Informaiton

E Appeal dismissed

Cases referred:

1. R. v Ehsanulhag s/o Karim Bux [1940] 7 E.A.C.A. 48.

F 2. Hamadi Juma v R. [1970] H.C.D. 30.

3. R. v Madirisha Kitikiti [1969] H.C.D. 233.

4. Issa Mohamed v. R. Criminal Appeal 108 of 1968 (PC) of High Court Dar es Salaam.

5. R. v Hazeline [1967] 2 Q.B. 857.

G D. Mbezi for the appellant

Senguji for the respondent

[zJDz]Judgment

H D'Souza, Ag. J.: The appellant Safiel Mrisho was at all material times a private with Tanzania Peoples Defence Forces (T.P.D.F) at Dodoma. He was a driver. On 8/2/82 he was brought before the District Court at Dodoma in Traffic Case No. 50/82 charged with three counts under the Road Treaffic Act No. 30/73. On the first count he was charged with causing death through careless I driving c/s 41 and 63 (2) (b), on the second with failing to report an accident to the nearest police station or police officer within

12 hours c/s 57 (2)(b) and 63 and finally on third count with driving a motor vehicle on a public road A with defects. In each of the three counts the particulars stated that the offence took place on the 4th of February, 1982 at about 19.30 hours along Arusha road within the municipality of Dodoma. The appellant pleaded guilty to the third count and was fined Shs.500/= or 6 months in default. B Thereafter the trial proceeded on the other two accounts.

At the trial PW.1 Shabani Badi stated that on 4.2.82 at 7.15 p.m. he saw an army truck overtaking a Peugeot motor vehicle and crashing into an oncoming cyclist. The army truck did not stop but put off its lights and disappeared. The cyclist, he says, was on his correct side of the road when C knocked. PW.2 Inspector James Kombe was on 4/2/82 informed of the hit and run case. He went to the army camp at Dodoma where he found one truck being repaired. He found the appellant there in uniform. He told the appellant and others present that he suspected that the motor vehicle had been D involved in an accident. He found the front part of the motor vehicle damaged. He found grains of sugar in the front mudguard. He also found a piece of trouser identical to the trouser worn by the cyclist. On cross-examination by the defence counsel PW.2 stated that the front bonnet of the vehicle was damaged. He did not know who drove the vehicle to the police station. He did not keep E the piece of trouser as exhibit. PW.3 Police Constable Bruno went to the scene of the accident on 4/2/82. He found neither the cyclist nor the motor vehicle there. He drew a sketch map of the scene which he tendered in court. At the point of impact there was sugar spread about. The next day he F went to the army camp at Dodoma where he arrested the the appellant, fond the truck, and ordered the appellant to drive it to the police station. He found black threads from the deceased's trousers and sugar particles on the oiltank and mudguard of the motor vehicle. He went to the hospital to see G the cyclist. Later the same day the cyclist died. PW.4 one Joseph Massawe testified that on 4/2/82 he was driving a Peugeot motor vehicle into town, when a military truck, driving fairly fast overtook his vehicle, and crashed into an oncoming cyclist.

In his defence the appellant agreed that he was driving the said motor vehicle No. JW 4390 on the H day in question but he says he returned to the camp and parked the vehicle at 6 p.m. On that day between 13.30 p.m. and 6 p.m. he went to the army unit at Veyula to ferry flour beans, sugar and vegetables. After 6 p.m. he said he went home. The sugar grains found on the motor vehicle must I have come from the sugar he was ferrying for Veyula Unit and not

A from the package deceased was carrying. The black threads must have come from some soldier's clothing. He said on the day his vehicle had no battery and no lights. Cross examined by the prosecution he said that he admitted the third count because on 4/2/82 he had used the motor B vehicle. He agreed the motor vehicle was inspected in his presence and he signed the motor vehicle inspection report. He did not know how the sugar grains got into the front mudguard.

DW.2 Donatus Gasper a T.P.D.F. soldier, stated that on 4.2.82 the appellant was sent to Msalato to C collect fertilizer. He left at noon and returned at 6 p.m. He parked the vehicle and went home. AT 6.20 p.m. one TPDF soldier Samwel Mwita went with the motor vehicle to Chadulu. He returned at 8.30 p.m. He said this Samwel Mwita was a Mechanic. By 13.4.83 he had left employment and gone D home. On cross-examination Dw.2 said he was sure the appellant was ferrying fertilizer and not food stuffs on that day. DW.3 Alphonce Jengela a TPDF staff sergeant testified that he is incharge of transport. He sent appellant to Msalato at 12.00 to collect fertilizer. Appellant was not seen by him again until 6/2/82. Dw.4 Sergeant Togo of TPDF at Veyula testified that between 12.00 noon and E 2.30 p.m. the appellant helped them to ferry foodstuffs, including sugar. He says the youths off-loading the sugar spilled some. When loading it the youths passed the front of the vehicle.

The trial court found that the appellant was the one who drove the truck involved in knocking down F the deceased. It based the finding on the following facts: 1. An army truck was involved in the accident. 2. The truck used by the appellant on the day of the accident was found to have damages in-front. 3. There was sugar on the front mudguard and oil tank of the truck. 4. The deceased at the time he was knocked down was carrying a parcel of sugar that burst during the accident, spilling the G sugar. 5. There were pieces of black thread on the truck. 6. The deceased was wearing a black trouser at the time of the accident.

Learned counsel for the appellant Mr. Mbezi argued that the evidence fell short of proving that the H truck examined by the vehicle inspector was the one that was involved in the accident. He argued that the vehicle inspection report Exh. 'A' did not show any damages after the accident. The pieces of thread were not proved to have come from the deceased's trousers and the sugar on the mudguard and oil tank was explained by the defence.

I In the alternative counsel argued that even if the truck involved in the accident was the same one examined by PW.2 it was not proved

in evidence that the appellant was the one who was driving the vehicle at the material time. He A stressed the defence evidence that one Samwel Mwita another soldier had used the motor vehicle after the appellant parked it at the army compound.

The investigation in this case was far from satisfactory. Nobody explained why no definite B comparison of the threads or piece of trouser found on the motor vehicle was made with the deceased's trouser and why both items were not kept as exhibits. It was erroneous for the trial court to consider that piece of evidence. I will consider the effect of this on the conviction later. The same however cannot be said for the sugar found in the front bumper and on the oil tank.

As it was C proved that the deceased was carrying sugar at the time he was knocked down, and that the accident caused this sugar to spread about this was one of the factors the trial court would take into account.

Learned counsel stressed greatly that the defence was wrongly rejected or not given weight. But let D us look at the defence carefully. One day after the accident the appellant was challenged as the perpetrator of the accident. He did not tell the police that another person drove the vehicle after 6.30 p.m. Some four months later during the trial this suggestion was not put to the police witnesses. E Nor was the suggestion that the vehicle had been carrying sugar for the army put forward. As was held in the case of R. v Ehsanulhag s/o Karim Bux (1940) 7 E.A.C.A. 48 it must inevitably affect the mind of the tribunal by detracting from the force of the defence when an explanation of some fact, prima facie inculpatory of the accused which in the circumstances must have been readily available F to him, is not offered until some late stage in the proceedings. In this case the defence appears to have been developed as an afterthought to cater to the prosecution evidence. I would say that the trial court was entitled to reject the defence. This does not mean that because the defence was G rejected the court was entitled to convict. The burden of proving the case beyond a reasonable doubt was still on the prosecution.

Learned counsel for the appellant argued that the vehicle did not show damages as Exh. 'A' did not reveal the same. With respect I cannot agree. Exhibit 'A' has two pages. The report on page two H shows that the front bumper was scratched on the off side and that the front mudguard was cracked on the off side. The report also noted the finding of sugar particles on the bumper bonnet and oil tank. This report was signed by the appellant on both its pages. I

A Aside from, not noting the significance of the appellant signing the vehicle inspection report showing damages/defects before and after the accident the trial court also failed to consider the significance of the appellant's plea of guilty and his agreement to the facts on the third count. In the B case of Hamadi Juma v R. [1970] HCD 30 Seaton, J. held that words spoken by an accused in his plea could not be used as evidence against him. However in an earlier case R v Madirisha Kitikiti [1969] HCD 233 Duff, J., citing a decision by Biron, J. in Issa Mohamed v.R Criminal Appeal 108 (PC) C of 1968 High Court Dar es Salaam and the English decision in R. v Hazeline [1967] 2 Q.B. 857, held that such words can be used in evidence. Of these two conflicting views the latter appears to be sound. I see no reason why words spoken by an accused to anyone else can be evidence against him but not words spoken by him in open court. However in this case things are slightly different as D in this case the appellant agreed to the facts as put to him in the third count. These mentioned the date, time and place of the driving. The date, time and place coincide with the date, time and place the deceased was knocked down. I hold that this admission should have been taken into account against the appellant.

E In this appeal it would appear that the trial court erroneously took into account the evidence of the threads from the trousers of the deceased and equally erroneously failed to take into account other admissible evidence on record.

F Where the trial court has wrongly admitted or rejected evidence at a trial the issue for a first appellate court is whether, on the evidence properly admissible and on record, the trial court would have convicted.

In this case I find that the admissions of fact on the 34th count coupled with the evidence of G reckless driving given by the prosecution witnesses was sufficient to prove the case against the appellant beyond a reasonable doubt.

If any corroborative evidence is needed (which I find was not needed) this can be found in the finding of sugar particles on the appellant's vehicle, the damages to the same, and his agreement to H sign the vehicle inspection report.

I accordingly dismiss this appeal in its entirety.

I Appeal dismissed

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[zRPz]ALLY KAGURU v HALIMA YANGA 1984 TLR 156 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Maina J

February 10, 1984

(PC) CIVIL APPEAL 45 OF 1983 B

Flynote

Civil Practice and Procedure - Assessors - Trial in Primary Court - Opinion and vote of assessors recorded by magistrate - One assessor not present when judgment was read - Whether irregularity curable. C

-Headnote

During the trial both assessors were present and their opinion and vote was recorded by the magistrate. On the date of delivering the judgment one assessor was absent. The issue was whether the irregularity could invalidate the proceedings. D

Held: Although there is no legal requirement for assessors to be present when judgment is delivered provided they give their opinions before a decision is made, it is desirable that they should be present. E

Case Information

Appeal dismissed.

No case referred to.

[zJDz]Judgment

Maina, J.: The respondent, Halima Yanga, successfully sued the appellant, Ally Kaguru, at the F urban primary court, Singida, for a house valued at Shs.10,000/=. The appellant's appeal to the Singida district court was dismissed. This is a second appeal.

There was no dispute that the house, subject matter of the suit, was being occupied by the G deceased, one Isaka Kamanyile until the time of his death in 1982. The respondent said that she

was married to the late Isaka in about 1945. Theirs was a marriage under customary law. During their marriage, the respondent said she built the house now in dispute with the assistance of the deceased Isaka. The respondent said that she supplied all the building materials. They lived in the H house together. They had no children. The respondent had a daughter, apparently by another man, and when she was away in Tanga visiting her daughter, the deceased lived with another woman named. When the respondent returned to the matrimonial home after many years the late I Isaka refused to take

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MAINA J

A her back. There was a claim filed before the reconciliation tribunal at Kibaoni in which the respondent claimed her house and household effects. According to a member of the tribunal, Juma Msombe, the deceased admitted that the house was build by joint efforts between the respondent B and the deceased. Unfortunately, the deceased died before the tribunal finalized the dispute. There was also evidence by Jumanne Salum in support of the respondent's evidence that the respondent had build the main house, now in dispute.

Against all that evidence, the appellant alleged that he was related to the late Isaka and that the said C Isaka bequeathed the house to him. Isaka's former wife, Amina was present when Isaka built the house, testified what she did not know who had constructed the house, although she alleged that she was married to the late Isaka and that the house was jointly built by herself and Isaka before D their marriage was dissolved. Idi Ntandu said that he had plastered the house at the request of the late Isaka and that the respondent had been away at Arusha.

Both lower courts found that the house in dispute was built mainly by the respondent but also with some efforts made by her late husband. The lower courts found as a fact that the couple had no E child and this was undisputed. It was held, therefore, that the respondent was entitled to the house. The appellant's first ground of appeal is that the house was build jointly by the late Isaka and his former wife Amina. But the evidence by Amina failed to prove that. Her evidence was discredited as F she could not even tell who had actually constructed it. If the house was built during the time she was living with Isaka and with their joint efforts she could not possibly have failed to name the person who constructed it. Both lower courts rightly found Amina's evidence unworthy of credit and rejected it.

G The appellant's second ground of appeal is that he was given the house by Isaka and that there was a will to that effect. But no such will was tendered in court. Furthermore, Isaka could not have bequeathed what was not his property. The respondent's evidence was supported by that of the H witnesses she called that she built the house with money she obtained after selling millet and that her late husband only assisted her.

The last ground of appeal is that one of the two assessors was not present when judgment was delivered by the primary court. I have only to point out that the record of the trial court shows I clearly that each one of the assessors gave his opinion at the end of the trial. Both said that in their opinion the house belongs to the respondent.

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The trial magistrate complied with section 8 of the Magistrates' Courts Act, 1963, by getting and A recording the opinions of the assessors. The record does not show whether both assessors were present when judgment was delivered in the primary court, but there is nothing in the law which requires assessors to be present when judgment is delivered by a primary court. What is important B is that they must give their opinions before a decision is made. This was done. It is desirable that the assessors be present when judgment is delivered but there is no legal provision requiring their presence in the primary court when judgment is being delivered. Absence of assessors or one of them at the time of delivery of judgment does not in any way invalidate the proceedings. C

I may point out here that even in the proceedings in which the appellant applied for, and was appointed administrator of the estate of the deceased Isaka Kamanyero, in Civil Application No. 10 of 1982 of the Singida Urban Court there is no mention of the house or of any properties left by the D deceased Isaka.

The evidence on record proved, on balance of probabilities, that the house in dispute was the property of the respondent and I can find no reason to interfere with the findings of the lower courts. It is for the foregoing reasons that this appeal is dismissed with costs. E

Appeal dismissed. F

1984 TLR p158

G

[zRPz]RAMADHANI RAMADHANI v SUNGI ANDALU 1984 TLR 158 (HC)

Court High Court of Tanzania - Dodoma

Judge Maina J

fEBRUARY 11, 1984

(PC) CIVIL APPEAL 49 OF 1983

Flynote

Family law - Desertion - Compensation for inducing wife to desert - Whether damages recoverable.

Family Law - Marriage - Whether payment of bridewealth per se constitutes a valid marriage. H

-Headnote

The appellant claimed damages from his father in law for inducing his wife to desert him. The claim was based on a marriage which had never taken place since the appellant's only proof of the alleged I marriage was that he had paid some bridewealth.

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MAINA J

A Held: (i) Payment of bridewealth, even if proved is not evidence of marriage; there must be clear evidence of a marriage ceremony;

(ii) the onus of proving the existence of a marriage is upon the party who alleges its existence;

B (iii) without proof of marriage, there can be no basis for damages for inducing a spouse to desert.

Case Information

Appeal dismissed.

C No case referred to.

[zJDz]Judgment

Maina, J.: The appellant, Ramadhani Ramadhani, filed a suit in the primary court at Ilongero claiming from the respondent, Sungi Andalu, four head of cattle being what the appellant said was damages D for inducing his wife to desert him. The primary court held that the respondent had wilfully married his daughter Zainabu to another man while the marriage between the appellant and Zainabu subsisted. The respondent was ordered by the primary court to pay the damages claimed. The E respondent however, appealed to the district court at Singida and the learned district magistrate held that there was no marriage at all between the appellant and Zainabu and therefore the respondent had a right to marry his daughter to Alute. The appellant was disatisfied and he now appeals to this court.

F The only issue is whether the appellant and Zainabu were ever married. There was no marriage certificate tendered but the appellant alleged that he married Zainabu in 1973 under customary law and that he had paid three white cows as bridewealth. The respondent vehemently denied that his G daughter Zainabu was at anytime married to the appellant. In fact the respondent claimed that his daughter and the appellant eloped to Arusha and when she returned the daughter was later married to Alute. That evidence was supported by the evidence of Zainabu herself and by the respondent's brother Mwangi Andalu and his son Ramadhani Sungi. As I said, and the learned district magistrate H who heard the first appeal pointed out, the issue is whether the appellant and Zainabu were married. The onus was on the appellant to prove that fact. Without proof of marriage, there can be no basis for damages for inducing Zainabu to desert the appellant.

I The only evidence of existence of marriage between the appellant and the respondent's daughter, Zainabu, was that of payment of

bridewealth to the respondent. But the evidence to that effect was unreliable. The appellant A testified that the bridewealth paid consisted of three cows. His witnesses, Ali Amasi and Omari Musa, on the other hand, said that they personally paid one cow and five goats as bridewealth to the respondent. There is an obvious contradiction between the evidence by the appellant and that of his two witnesses, on this issue. That contradiction casts a lot of doubt on the evidence and it is B difficult to believe that any bridewealth was ever paid to the respondent. So, the lower courts were entitled to believe the respondent when he said that no bridewealth was paid and that there was no C marriage between the appellant and the respondent's daughter, Zainabu. The appellant totally failed to prove his allegation that he paid bridewealth to the respondent and his evidence was properly rejected by the lower courts.

Even if, for the sake of argument, the appellant had paid bridewealth, there was no evidence of any marriage ceremony between the appellant and Zainabu. Payment of bridewealth, even if proved, is D not evidence of existence of marriage. There must be clear evidence of a marriage ceremony. The appellant failed to prove that there was such ceremony of marriage. Under section 27(1) of the Law of Marriage Act, No. 5 of 1971, every marriage must be contracted in the presence of at least two E witnesses. If the appellant claimed that he had married Zainabu by customary law, he had to prove that there was such marriage by calling even one witness who was present at such ceremony. The appellant not only failed to prove payment of bridewealth, but he failed to prove that there was F marriage performed between him and respondent's daughter, Zainabu. The respondent and all his witnesses denied existence of such marriage and in the circumstances, the first appeal rightly held that no marriage existed between the appellant and Zainabu. That being the position, the respondent was perfectly free to marry his daughter to Alute or to any other person. G

The appellant's claim for damages was misconceived and this appeal is dismissed with costs.

Appeal dismissed. H

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[zRPz]PIA JOSEPH v REPUBLIC 1984 TLR 161 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

B CRIMINAL APPEAL 72 OF 1983

Flynote

Criminal Practice and Procedure - Alibi - Failure of trial court to consider accused's alibi - Consequences.

Criminal Practice and Procedure - Credibility of witnesses - Circumstances that may justify an appellate C court's interference with trial court's finding on credibility.

-Headnote

The appellant was convicted of unlawful wounding on the basis of evidence of witnesses who purported to have identified her in darkness. Appellant claimed that she had been at another place D at the material time. There were some material inconsistencies in the statements of the prosecution witnesses as regards the identification of the accused.

On appeal the issue was whether the appellate court could interfere with the findings of the trial E magistrate on credibility of witnesses.

Held: (i) An appellate court will not lightly interfere in the trial court's finding on credibility unless the evidence reveals fundamental factors of a vitiating nature to which the trial court did not address F itself or address itself properly;

(ii) it is the duty of the court to direct its mind properly to any alibi set up by a prisoner;

(iii) it is a rule of practice, not of law, that corroboration is required of the evidence of a witness G of identification of the accused made under unfavourable conditions.

(iv) a previous threat to commit a particular offence does not constitute conclusive proof of the commission of such offence, but it affords corroboration to other credible evidence.

Case Information

H Appeal allowed.

Cases referred to:

1. Glannibanta [1876] 1 P.D. 283.
2. Pandya v R. [1957] E.A. 336.

I 3. Coghlan v Cumberland [1898] 1 Ch. 704.

4. Abdallah Wendo v R. [1953] 20 E.A.C.A. 166.

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5. Waihi v Uganda [1968] E.A. 278. A
6. Mwakawanga v R. [1963] E.A.6.
7. Sekitoleko v Uganda [1967] E.A. 531
8. Manda v.R. [1965] E.A. 193.

Mwambe for the Republic B

[zJDz]Judgment

Lugakingira, J. Around 11 p.m. on 31.3.1983 the complainant Abdallah Omari Fonga, a resident of Kondoa township, was attacked and injured with a sharp instrument. It occurred as he opened the rear door of his bar on his way out and he claimed to have identified the appellant Pia Joseph as his C assailant with the aid of moonlight. Four days later he reported the appellant to the police whereupon she was arrested and charged with causing grievous harm c/s. 225 of the Penal Code. At the conclusion of the trial she was convicted of unlawful wounding c/s. 228 (1), the trial magistrate D taking a light view of the injury, and was sentenced to two years' imprisonment subject to confirmation. She appealed against the conviction and sentence. At the hearing of the appeal learned counsel for the Republic Mr. Mwamba declined to support the conviction. I agreed and allowed the appeal, setting aside the conviction and sentence, and ordered the appellant's release E from custody. I did so for the reasons set out in this judgment. In view of what will transpire, it is necessary to examine the relationship between the parties along with a summary of the contending evidence. The complainant and the appellant were previous F lovers who had cohabited for a year. At the time of the incident they were estranged, the complainant having become "fed up" with the appellant, and a dispute was pending before the reconciliatory tribunal following a report by the complainant. Earlier that morning they had met at a butchery and the appellant had allegedly threatened the complainant stating: "You are accusing me G before the conciliatory board, but you (will) see it. If I fail to kill you, then I will employ people to kill you." Later that night the complainant was indeed attacked. His evidence as regards the attack and the identity of the attacker was supported by PW2 and PW3 who were with him at the time. In H her defence, however, the appellant stated that she left her house at 8.30 p.m. and proceeded to Kondoa by Night Bar (not the

complainant's) where she stayed until midnight. She then returned home accompanied by DW2 and DW3 and straight went to bed. Next day, at about 10 a.m., she got I news of the complainant's attack. She went to the hospital to see

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A him but learned that he had not been admitted. She could not go to the complainant's house because (naturally) the complainant's wife was hostile to her. Four days later when she was herself admitted in hospital she heard that the police were looking for her. Upon her discharge she reported B at the police station to inquire and was then accused of this offence. DW2 and DW3 corroborated her alibi.

The trial magistrate decided to believe the complainant and his witnesses. He dismissed the alibi as untrue on the ground that the appellant's witnesses had contradicted themselves. Whereas DW2 C stated that on arrival at the appellant's house from Kondoa By Night Bar he and DW3 went their separate ways, DW3 stated that she and her husband were staying in the same house with the appellant and that actually she (DW3) slept in the appellant's room as the appellant was not feeling well. Because of this contradiction the trial magistrate held that the alibi had not been corroborated D and commented that the defence witnesses were intent on distorting justice.

Although this was a simple case it raises rather significant questions, namely credibility or the role of an appellate court in that regard, the burden of proof in an alibi and corroboration. I will deal with these matters seriatim.

E The law as regards the role of an appellate court in matters of credibility is settled beyond paradventure. The trial court which has seen and heard the witnesses, thereby being privileged to observe their manner and demeanour, is certainly in a better position to assess their credibility than F an appellate court which has not had these advantages. It has therefore been consistently held that an appellate court will not lightly interfere in the trial court's finding on credibility unless the evidence reveals fundamental factors of a vitiating nature to which the trial court did not address itself or address itself properly.

G As a rule of practice, therefore, a first appeal assumes the character of a retrial and as stated in The Glannibanta (1876), 1 P.D. 283, an appellate court:

> cannot excuse itself from the task of weighing conflicting evidence and drawing its own inferences and H conclusions, though it should always bear in mind that it has neither seen nor heard the witnesses, and should make due allowances in this respect.

This case was followed by the Court of Appeal in Pandya v R. [1957] E.A. 336 as was Coghlan v I Gumberland [1898]1 Ch. 704 where it was also stated:

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> there may obviously be other circumstances, quite apart from manner and demeanour, which may show A whether a statement is credible or not; and these circumstances may

warrant the court in differing from the (trial) judge, even on a question of fact turning on the credibility of witnesses whom the court has not seen. B

In the case before me the trial magistrate stated emphatically that he believed PW2 and PW3. I think, however, that there were factors which, on a proper consideration, raise doubts as to the credibility of the two witnesses. First of all, PW2 was in court when the complainant testified. I am not saying C that it is in every case that a witness will be doubted when he hears the evidence of a preceding witness, but when such first mentioned witness is called to give evidence of precisely the same import as the preceding witness, it cannot be seriously suggested that his is an independent mind. D The court would therefore be bound to approach such evidence with reservations. Secondly, PW3 was an employee of the complainant. Undoubtedly, she had an interest of her own to serve and, unlike the learned trial magistrate, I cannot consider her to have been free of partiality. There E was reason to doubt her as well. Thirdly, neither PW2 nor PW3 reported the appellant anywhere either that night or at any time thereafter. In fact, PW3 escorted the complainant to the police station on route to the hospital at 5 a.m. but neither he nor the complainant himself mentioned the appellant then. Interestingly, too, not a single police officer was called to testify on this or any other aspect. F On the other hand, PW3 abandoned the complainant at the scene and silently went to sleep. Fourthly and finally, PW2 and PW3 contradicted themselves as to who, among them, was in a position to identify the assailant. The relevant portions of their evidence are very revealing and I G take the liberty to cite them. In the words of PW3:

> As Abdallah fell backward on me he left the door open and I ran to it in order to shut it and soon I saw the accused with a bush knife in her hand. I hurried to shut (it) for fear that she would do more harm to Abdallah H ....

But from PW2 we get a different impression, first, as to whether the complainant left the door open or shut upon being attacked and, second, as to who hurried to shut or open it, and who, therefore, I was in a position to see the assailant. He said:

> A I hurried to open the door to see who was the assailant and saw Pia Joseph with a panga. I immediately shut the door to avoid further attack from her.

He then added, and no less significantly:

> B Mama Wawili (i.e. PW3) was behind us and when I hurried to see who was the assailant she remained rubbing off blood on the complainant's forehead.

I think that having regard to these contradictions and the other factors stated in this connection, it C was unsafe to hold that the two witnesses were credible in their purported identification of the assailant. It is therefore difficult to uphold the finding of the trial magistrate.

The same applies to the complainant himself. As just seen he never mentioned the appellant to the D police on the very first occasion. According to his own evidence he did so four days later. Yet no reason was suggested for that four-day silence. The only reasonable inference is that he could not have identified his assailant as claimed but later picked on the appellant ostensibly because of E suspicion. I have already set out the relationship between him and the

appellant. It was that of intense enmity. A dispute was actually pending before the elders. I have also indicated how earlier that morning the appellant had threatened to kill the complainant. These were factors which could F lead a person in the complainant position honestly but mistakenly to suspect the appellant. As stated in Abdallah Wendo v R. (1953) 20 EACA 166.

a witness may be honest yet mistaken, and may make erroneous assumptions particularly if he believes that G what he thinks is likely to be true must be true.

It must have been so with the complainant. He had grounds to believe that what he thought was likely to be true must be true. Yet I cannot say that he was also honest in his belief since it took him H four days weighing up the chances. There was therefore prevarication and soul searching and this, in my view, could only have been because he had not recognised or correctly recognised his assailant.

On the other hand, I cannot say that the prior threat by the appellant was not without significance. I But since threats do not necessarily materialise, I cannot say, either, that the threat in this case provided irresistible evidence. A threat made in the

circumstances of this case can at best afford corroboration to other credible evidence. In Waihi v A Uganda [1908] E.A. 278 the appellant had announced his intention to kill the deceased and indeed the deceased was killed. The Court of Appeal observed that

Evidence of a prior threat or of an announced intention to kill is always admissible evidence against a person B accused of murder, but its probative value varies greatly and may be very small or even amount to nothing.

The Court went on to uphold Waihi's conviction for murder because the threat corroborated other C evidence incriminating him. In the case before me there was an alibi tending to exculpate the appellant and to this I will now turn.

It was confirmed by DW2 and DW3 that indeed the appellant was at Kondoa By Night Bar from around 8.30 p.m. to sometime after midnight and that they escorted her home. The trial magistrate D disbelieved those witnesses because they appeared to contradict themselves as to what happened after they had arrived at the appellant's house. In law the accused has no obligation to prove an alibi. The burden always remains on the prosecution to prove their case beyond reasonable doubt. E The accused, if he elects to testify, is only expected to adduce such evidence as would suggest to the court that his story could possibly be true. As held by this Court in Mwakawanga v R. [1963]E.A. 6: F

an accused putting forward an alibi as an answer to a charge made against him does not in law thereby assume any burden of proving that answer. It suffices to secure acquittal that the accused by such evidence as he may choose to adduce introduces into the mind of the court a doubt that is not unreasonable". G

It was similarly held by the High Court of Uganda in Sakitoleko v Uganda [1967] E.A. 531, and I agree, that: H

It is a wrong statement of the law that the burden of proving an alibi lies on the prisoner. It is the duty of a Criminal Court to direct its mind properly to any alibi set up by a prisoner; and, it is only when the court comes to the conclusion that the alibi is unsound that it would be entitled to reject it. As a general rule of law, the I burden of proving the guilt of a prisoner
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A beyond reasonable doubt never shifts whether the defence set up is an alibi or something else. That burden always rests on the prosecution."
In the instant case the trial magistrate rejected the appellant's alibi because of an immaterial B contradiction in the defence evidence. He thereby incorrectly cast upon her the burden of proving the alibi beyond reasonable doubt. I say that the contradiction was immaterial because it did not relate to the fact that the appellant had been at Kondoa By Night Bar till midnight or the fact that she C was from there escorted straight home. It related to what DW2 and DW3 did after that.
I think that this is the appropriate juncture to touch on corroboration. Corroborative evidence, as I understand it, is that which has the effect of confirming in material particulars the evidence requiring D corroboration. In the words of the Court of Appeal in Mande v R. [1965] E.A. 193 at p.199.

The corroborative evidence required is that which shows or tends to show that the story of the person whose E evidence is to be corroborated is true.....
The material particulars in this case, the evidence which required corroboration, was whether the appellant was at Kondoa By Night Bar till midnight and whether from there she went straight to bed F so as not to be in a position to commit the attack at 11 p.m. at the complainant's bar. These matters were corroborated. Without belabouring the point further, I think that a reasonable doubt had been raised for the alibi could possibly have been true. This doubt was immensely fortified by the fact G that it took the complainant four days to make up his mind as to who his assailant could have been. Had the trial magistrate directed himself in the manner I have attempted to I cannot say that he would nevertheless have found the appellant guilty of any offence.
H I was therefore of the view, which view I shared with learned counsel for the Republic, that the charge had not been proved beyond reasonable doubt and I allowed the appeal as aforesaid.
Appeal allowed.
1984 TLR p168
A
[zRPz]HENERY TIMOTHEO v REPUBLIC 1984 TLR 168 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

July 10, 1984

CRIMINAL APPEAL 4 OF 1984 B

Flynote

Criminal Practice and Procedure - Revision - Revision of sentence for simple theft enhanced to one of scheduled offence under Minimum Sentences Act 1972 - Magistrate revised sentence in exercise of revisionary jurisdiction - Revision based on facts privately obtained by magistrate - Whether irregularity curable. C

-Headnote

The appellant was convicted of simple theft and sentenced accordingly. Subsequently the proceeding came to the attention of a District Magistrate who purported to revise and enhance the D sentence on the basis of facts privately gathered by Magistrate which the appellant had not had an opportunity to deny or accept.

Held:(i) A conviction or sentence can only proceed on the evidence, if there is a full trial, or on the facts if there is no full trial, stated before the trial court; E

(ii) a subordinate court has no power to review its own decision;

(iii) a sentence imposed in revision is as much appealable as one imposed on appeal. F

Case Information

Appeal allowed.

No case referred to.

[zJDz]Judgment

Lugakingira, J.: The appellant was before the Primary court at Ulemo in Iramba district charged with G simple theft (termed "Wizi wa Kawaida" in the charge sheet) c/s.265 of the Penal Code. It was alleged that on 1.11.83 he stole some items of clothing worth shs. 656/= the property of an unnamed village shop. He pleaded guilty to the charge. Facts were then narrated by the complainant one H Jumanne Saidi and these facts revealed that the clothes were stolen from Jumanne Saidi's house and there was no mention of any shop or any village. The appellant admitted the facts and was accordingly convicted as charged and sentenced to six months' imprisonment. That was on 8.11.83. I

Subsequently, the proceeding came to the attention of the Senior

1984 TLR p169

LUGAKINGIRA J

A District Magistrate at Kiomboi. He thought there was an error in sentencing and called for the record and proceeded to revise the proceeding. In doing so he contacted a co-operative officer and learned from him that a village known as Makunda was registered. He therefore formed the opinion B that the offence was scheduled. He proceeded to set aside the six-month sentence and substituted therefore a sentence of three years' imprisonment. The appellant appealed against that sentence. I allowed the appeal and set aside the three-year sentence and since the appellant had completed the six-month sentence, I ordered his release from custody. My reasons for doing so are C set out in this judgment.

A conviction or sentence can only proceed on the evidence, if there is a full trial, or on the facts, if there is no full trial, stated before the trial court. It cannot proceed on matters privately sought for D and found by the trial court or a higher court. As indicated above the facts stated

in this case did not reveal the owner of the clothes other than Jumanne Saidi. There was no mention of any shop and there was no mention of any village. I think, therefore, that the trial court was justified in convicting and sentencing the appellant outside the provisions of the Minimum Sentences Act, E 1972. It was not open to the learned Senior District Magistrate to alter the sentence on the basis of facts privately obtained by him, which facts the appellant had not had the opportunity to accept or deny. In fact I do not know how the Senior District Magistrate came to learn that the clothes F belonged to Makunda village shop for neither the charge sheet nor the facts on record mention any village. I only learn that Makunda or Makunde village was the address of the appellant and it may well be that the Senior District Magistrate launched his investigations on that clue. In any case, he G acted on private information and by so doing an injustice was occasioned to the appellant.

I have also noticed a curious and vigorous protest by the Senior District Magistrate. In his telegram with which he forwarded the records here he states that he cannot "understand how the appeal can H be entertained by the High Court without first being dealt with by this (his) court." With respect, that view is erroneous. This was an appeal against the sentence imposed by him and it certainly was not in his power to review his own decision. A sentence imposed in revision is as much appealable as a sentence imposed on appeal. It would have been a different matter if the appellant had appealed I against the conviction as well. In that case the appeal would indeed have gone to the District Court and in deciding the appeal the District

Court would not have been precluded from setting the sentence aside if it quashed the conviction. A But this being an appeal against the sentence only, it was properly brought to and entertained by this Court.

I allowed the appeal for the reasons first set out above. B

Appeal allowed.

1984 TLR p170

C

[zRPz]ONASAA SHERERENGWA MUSHI v REPUBLIC 1984 TLR 170 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

August 6, 1984

MISCELLANEOUS CRIMINAL CAUSE 22 OF 1984 D

Flynote

Criminal Practice and Procedure - Bail application - When bail may be denied.

-Headnote

The accused, who was facing a charge of attempted murder applied for bail. It was argued on his behalf that he qualified for bail since he met the principal requirement of availability to stand trial. E The prosecution were not opposed to the application.

Held: (i) The availability of an accused to stand trial is a major, but not sole, test to be applied in considering whether or not to grant bail; a court considering to grant bail is entitled to take into F account all the circumstances pertaining to the case before exercising its discretion one way or another

(ii) the acquiescence of the prosecution is not a determining factor in a bail application and the court may decline to exercise its discretion in favour of the accused notwithstanding the attitude of G the prosecution.

Case Information

Application rejected. H

Cases referred to

1. Alibhai v R. (1943)1 TLR(R) 138
2. Sarongi v R. [1975] LRT n.58

V.D. Lyimo for the Republic I

G. Alimwike for the applicant

1984 TLR p171

LUGAKINGIRA J

[zJDz]Judgment

A Lugakingira, J.: Concerted efforts are being made to secure bail for the accused who is facing a charge of attempted murder. This is the second time in two weeks that this Court has been resorted to in this regard. The first application was made on 23.7.84 when it was alleged that the District B Court had abdicated its duty. I then ruled that the court could grant bail on suitable terms if it considered it safe and desirable to do so. That court was then approached on 26.7.84 but it declined to grant bail, albeit the prosecution's acquiescence, stating that it was neither safe nor proper to do so. That prompted the present application.

C Today, it was argued before me by Mr. Alimwike for the accused that the test to be applied in these matters is whether the accused will be available to stand his trial. He viewed all other considerations as irrelevant except the nature of the charge which he did not consider serious. He D also thought it illogical for bail to be refused when the prosecution were not opposed to it. Truly Mr. Lyimo who appeared for the Republic stated that he was not opposed to bail being granted on the grounds advanced by Mr. Alimwike. He also seemed to imply today, as he did on 23.7.84 when he also appeared, that the charge facing the accused was not a serious one. He went on to state that E he had since interviewed the investigators and they had assured him that there was no likelihood of the accused jumping bail.

I agree that whether or not an accused would be available to stand his trial is a test to be applied in considering whether or not to grant bail. However, I am also settled in my mind that that is not the F sole consideration. A court called upon to consider granting bail is entitled to take into account all the circumstances pertaining to the case before exercising its discretion one way or the other: Alibhai v R. (1943), 1 TLR(R) 138. Indeed s.123 of the Criminal Procedure Code does not purport to G influence the discretion of the courts in this matter. Further, I do not consider the acquiescence of the prosecution a decisive factor in these matters. It is certainly a factor which a court cannot ignore, but in the end the discretion whether or not to grant bail is

entirely in the court and it may decline to exercise its discretion in favour of the accused notwithstanding the attitude of the H prosecution: Sarongi v R. [1975] LRT n.58. I must also say that I have found the present attitude not a little interesting. It was previously alleged in the lower court by the prosecution that there were fears that if the accused were released on bail he would escape, alternatively, that his life would be I endangered. For no apparent reason, these fears are said to have been abandoned.
1984 TLR p172
Admittedly, the allegations were not made on oath, but one cannot but recoil at the driving motives A of persons who behave as if these allegations were never made or were made in jest.
As I have said, the accused is charged with attempted murder and with the use of a gun. His victim is said to have been discharged from hospital but that does not reduce the charge to anything less. B Attempted murder is in my view a serious offence and I am impressed that anyone can hold a contrary view. If the accused were convicted the punishment is more likely than not to be severe. Nothing that has been said before me shows that he has the stoicism happily to surrender to this consequence. On the whole, the interests of justice dictate that it is neither safe nor desirable to C grant bail in this case.
Application dismissed. D
1984 TLR p172

[zRPz]BEN ZUBERI MWAMBA v REPUBLIC 1984 TLR 172 (HC)

Court High Court of Tanzania - Dodoma
Judge D'Souza Ag J

September 5, 1984
CRIMINAL APPEAL 21 OF 1984 E
Flynote
Criminal Practice and Procedure - Burden of proof - Corruption offences - Burden lies on prosecution to show reasonable suspicion of corruption or unlawful acquisition - Section 9(1) of the Prevention of F Corruption Act 1971.
Evidence - Hostile witness - Meaning of - Prevention of Corruption Act 1971 - Interpretation - Meaning of "may reasonably be suspected of having corruptly acquired" under section 9(1) of the Prevention of Corruption Act 1971. G
-Headnote
The appellant was charged with various offences of obtaining advantage for inadequate consideration contrary to section 6 and knowingly giving a false account in relation to property contrary to section 8 of the Prevention of Corruption Act 1971. It was alleged that the appellant who H was the Marketing Manager with the Singida Regional Trading Company, a public corporation, acquired various properties by using his position as a public officer. The trial magistrate held that he had acquired the property corruptly because he could give no

satisfactory account of how he had acquired the properties. The conviction was quashed on appeal. I

1984 TLR p173

D'SOUZA Ag J

A Held: (i) To prove corruption it is not enough simply to show that the property was acquired illegally or through discreditable means because such property may not necessarily be corruptly acquired;

B (ii) failure by the accused to explain how he acquired property will not in itself justify an inference that it was corruptly acquired;

(iii) an official found in possession of property apparently disproportionate to his means may have acquired it by corruption, or in some way which is illegal or discreditable;

C (iv) before the burden of proof shifts to the defence in offences involving being in possession of property corruptly acquired there must be reasonable suspicion of corruption or unlawful acquisition;

(v) it is not every witness that gives unfavourable evidence that can be declared hostile; for a D witness to become hostile it must be shown that he prevaricates or suppresses the truth.

Case Information

Appeal allowed.

E Cases referred to:

1. Teddy Lucas v R. [1977] LRT 33
2. D.P.P. v Felician Tibilikirwa [1973] E.A. 440
3. John Kichuri v R. [1978] L.R.T. n.27.

F G. Alimwike for the appellant

Mwambe for the respondent

[zJDz]Judgment

D'Souza, Ag. J.: The appellant in this case Ben Zuberi Mwamba was charged with seven counts G under the Prevention of Corruption Act 1971. He was convicted on five of these counts. He was acquitted on the fourth and sixth counts.

The particulars of the first count allege that on 19.9.81 he solicited a loan of Shs.100,000/= from one Seleman Abubakar, a person whom he knew or had reason to know was likely to be concerned in a H matter with himself as a public officer, for a consideration he knew or had reason to believe to be inadequate, contrary to s.6 of the corruption Act. On the second count he was alleged to have obtained a loan of Shs.15,000/= from the same Selemani Abubakar for a consideration which he knew I or had reason to believe to be inadequate. In the third count the particulars allege the obtaining a loan of Shs.60,000/= from one Amir Said contrary

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D'SOUZA Ag J

to the same section of the Corruption Act. On the fifth count he was alleged to have obtained a loan A of Shs.85,000/= from one Selemani Abubakar contrary to the provisions of s.6 of the Corruption Act. The last count alleged that he was found in possession of property reasonably suspected of having been corruptly or unlawfully acquired (contrary to s.9 (1) of the Corruption

Act. The B particulars on the last count stated that he "was found to have constructed a house on plot 239 Makole in Dodoma valued at Shs.306,000/= of which value Shs.273,000/= is reasonably or otherwise unlawfully acquired."

Before coming to the findings and conclusions of the trial magistrate I propose to briefly summarise C the evidence produced by both sides in this case.

PW.1 John Shila, an accountant with the Evangelical Lutheran Church of Tanzania, testified that his organisation sold the appellant a motor vehicle and the appellant paid a total of Shs. 160,000/= for it between 16.2.82 and 22.3.82. PW.2 Amri Saidi testified that he was a transporter at Singida and that D the appellant was his relative. He stated that he knew that the appellant was the marketing manager of Singida Regional Trading Company. His buses got diesel from various petrol stations including the Agip petrol station that was run by the Singida Regional Trading Company. He stated E that he gave the appellant a loan of Shs.60,000/=. When probed further on cross-examination by counsel for the appellant, he stated that under the arrangements made by him and the appellant for repayment of the loan he was to be paid an extra Shs.10,000/= which could be his benefit from the transaction. He stated that he could not have begged for fuel oil from the appellant as permits were F issued by the Regional Office.

PW.3 Seleman Abubakar, a transporter at Singida, testified that in August 1981 the appellant who was by then the Marketing Manager of RTC Singida, came to him for a loan of Shs.100,000/=. He G said he gave the appellant a loan of Shs.85,000/= in September 1981 and a further loan of Shs.15,000/= on 22nd March 1982. After that the proceedings read as follows:

Pros: I apply to treat the witness as hostile under s.164 of the Evidence Act. H

Court: I have seen the statement of the witness he made on 9.8.82. In the statement the witness admitted lending the accused Shs.15,000/= only out of the proposed loan of Shs.100,000/=. In court the witness says he I gave the accused

A Shs.85,000/= in 1981. This is a material departure from his earlier statement. The prosecution are granted leave to treat the witness as hostile and are hereby allowed to cross-examine him.

B Thereafter this witness told the court that on one occasion the appellant gave him a permit to get petrol. He agreed that the Shs.85,000/= were not mentioned in his statement but he said, he told the investigator of this amount. He said the investigator was apparently not satisified with his story C regarding the Shs.85,000/= because he could not produce a written record for that amount. At the end of the prosecution and defence cases the court, exercising its discretion under s.151 of the Criminal Procedure Code or s.147 (4) of the Evidence Act, and with the consent of both the prosecution and the defence, recalled PW.3 Selemani Abubakar. He testified that he had agreed with D the appellant to an interest payment of Shs.10,000/= on the loan. He stated that when there was an unusual delay in repayment he started accepting repayment in the form of bags of maize which he sold at a profit and some of which he used for himself and his family.

E PW.4 Hamidu Shabani Kimasharo testified that he was an employee of the Agip petrol station at Singida. He produced two chits written by the appellant and authorising sale of fuel to PW.2 and PW.3. The fuel was supplied and PW.2 and PW.3 paid in cash. PW.4 said they used to borrow fuel F from PW.2 and PW.3. The first chit, produced as exhibit K1 had this endorsement "Tunadaiwa lakini walipe ili baadaye tujuwane." The second chit instructed the petrol station to sell PW.2 fuel as his bus was stranded some 100 miles away without fuel.

PW.5 Alfred John Mwale, the General Manager of Singida R.T.C. testified, among other things, as to G the appellant's duties as Marketing Manager. He stated that when there was a fuel shortage the appellant and the transport officer in the Regional Development Director's office were empowered to issue permits on the basis of certain priorities that were not elaborated. He gave the appellant's H salary at Shs.60,700/= per annum. He admitted that the appellant's wife worked but he did not give further details.

PW.6 Melkiad Swela, an officer of the Anti Corruption Squad, testified on a number of aspects of the case. First that the appellant purchased a land rover from the central synod for Shs.160,000/=. That I PW.2 admitted giving a loan of Shs.60,000/= to the appellant. That PW.3 admitted giving a lona of Shs.15,000/=. The witness

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D'SOUZA Ag J

produced PW.3's statement as exhibit 'O'. His investigations revealed that PW.2 and PW.3 were A given permits by the appellant to enable them to obtain fuel. That he found out that the appellant had built a house on plot 239 Makole and that at his request the Regional Land Officer valued the house. The value was Shs.306,000/=. The appellant told him that he built the house from the salary B of himself and his wife and a Housing bank loan of Shs.80,000/=. He collected details of the appellant's earnings since he left school in 1971. These show that the appellant earned Shs.97,935.75 between 1971 and 1981 both years inclusive. He found out that in fact the appellant got a loan of Shs.33,000/= and not Shs.80,000/=. He found the appellant with furniture valued C Shs.27,377/=. Cross-examined by counsel for the appellant the witness said that the appellant did tell him that he had a chicken project in Dar es Salaam.

On the loan of Shs. 85,000/= from Amiri Saidi he said: D

> I followed up on whether the Shs.85,000/= was advanced or not. I was not satisfied that the money was advanced. This was because the accused told me he sent the money to Amiri Saidi and then withdrew the E money in small amounts while Amiri Saidi said the accused took the money in one lump sum. I therefore entertained doubt whether the Shs.85,000/= was loaned or not.

He established a connection between the appellant and the witnesses PW.2 and PW.3 in so far as F purchase of petrol was concerned. He finally said that he did not include Shs.85,000/= in the statement recorded from Seleman Abubakar.

The next witness for the prosecution PW.7 Crhistostom Kuyenza, a valuer with the Ministry of G Lands at Dodoma valued the appellant's house at Makole. He found that the title deed was issued in 1975. He valued the house at 1982 construction and market costs. According to their procedures the date of completion was the relevant date for valuation. He did not question the

appellant on any aspect before completing his report. He made comparative valuations of two other houses in H Dodoma.

The appellant gave sworn evidence. He denied all the charges against him. He agreed having received the loans from PW.2 and PW.3. He stated however that they were his close relatives and implied that the loans were given partly because of close family ties but not because of any I connection with his employment as marketing

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D'SOUZA Ag J

A manager of R.T.C. at Singida. He stated that despite all these factors the loans were not interest free as he had agreed with PW.2 and PW.3 that he would return the loan with interest. PW.3 was to get about 10% interest and PW.2 about 13% on the loans.

He went on to say that fuel in the Region was allocated by the Regional Scarce Commodities B Allocation Committee. Even the R.T.C. had to apply to this Committee. They used to borrow fuel from parastatals and private persons. In such circumstances when R.T.C. got fuel they used to give C priority to those people from whom fuel was borrowed. PW.2 and PW.3 were two such people who used to lend fuel to R.T.C. to enable it to make essential transport trips. Aside from the income from lawful side activities, he hired the Land Rover he bought to the Capital Development Authority who paid him Shs. 25,000/= by cheque on 13.2.84 and Shs.30,921/= on 1.3.84. He produced a receipt D issued by the Regional Agricultural Officer for Shs.3,750/= for ploughing charges and another delivery note for 30 empty gunny bags purchased from Gapex. These documents were in support of his statement that he was producing maize on his shamba. He was also a poultry keeper. In 1979 E and 1980 he made a profit of 7,000/= to 8,000/= per month from keeping broilers. He produced an order form and a receipt for payment for 200 broilers in support of his assertions.

In respect of the house at Makole in Dodoma, the appellant stated that he started construction of the same in 1973. He built the out house with his own earnings and the main house with a T.H.B. F loan. He produced a building plan dated 8.111.77 as Exhibit 9. The plan is in respect of Plot 239 Makole and has been approved by the Building Control Officer of the Capital Development Authority. The plan shows an existing building shaded in red and an unshaded proposed extension. G The appellant stated that the shaded portion was already constructed by 1975. He produced a number of receipts for building materials he bought between 1973 and 1977 to support his statement that building materials were very cheap during that period. The cost of the construction completed before 1975 he put at Shs.20,000/= and the second part he put at Shs.50,000/=. He said that the H valuation officer (PW.7) never came to him for any information regarding construction cost and date of completion of various parts of the house. Cross-examined by the prosecution, he said that his poultry project in Dar es Salaam processed about 200 chicken per month. His shamba on which he I grew maize was 25 acres in area. He admitted that in the written loan agreement with Selemani Abubakar (PW.3) no mention was made of any interest

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D'SOUZA Ag J

element. Asked about his written reply to a notice from the Anti Corruption Squad he said that he A was given only 24 hours to answer 62 questions and this may explain any discrepancies in the statement. The agreement with PW.2 and PW.3, he insisted, were agreements with his clan relatives.

The appellant called five witnesses in his defence. B

DW.2 Haruna Shabani, the appellant's brother in law testified that he was a resident of Dar es Salaam. He stated that appellant first started rearing chickens at his house in two lots of 100 each. Then the appellant moved the project to his own house where he built a three roomed chicked banda. C

DW.3 Thomas Nyaulingo, a small time builder, testified that between 1973 and 1975 he built for the appellant the part of appellant's house shaded in red on Exhibit 9. He stated that by 1983 prices of building materials had gone up 300% compared to the prices in 1972 - 1975. He had used another building plan and not Exh.9. D

DW.4 Abdalla Saidi Mkoma witnessed the written agreement between PW.3 and the appellant for the loan of Shs.100,000/=. He was not present when the two negotiated terms but was only called to sign the agreement as a witness. E

DW.5 Tiba Mwamba was the appellant's wife. She testified that she worked with the NBC from 1972. She started work with a salary of Shs.350/= p.m., increasing six months later to Shs.410/= per month and in 1977 to 570/= per month. In 1978 her salary went up to 1,650/= p.m. She testified that one 1st F phase of their house they built between 1973 - 1975. Part of the labour work was done by herself and her husband. She testified in support of her husband on the poultry project at Dar es Salaam which she said was profitable. Every month they marketed 200 broilers.

DW.6 Omari Saidi Mkoma, the appellant's cousin and neighbour testified that between 1978 and G early 1981 the appellant had a poultry project at Dar es Salaam. The project had a three roomed 'banda'.

Before I conclude this review of the defence evidence, I must note that before closing the defence case, Mr. Alimwike, Counsel for the appellant, applied that the court invoke its powers under s.151 H of the Criminal Procedure Code or s.147 (4) of the Evidence Act to have PW.3 recalled for clarification of parts of his evidence. The court granted the application without indicating which provision it relied on. In so far as the application was for recall of PW.3, and not an application to call PW.3 as a defence witness, I would find that PW.3 was wrongly put down as DW.7. Whether I the court

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D'SOUZA Ag J

A granted counsel's application under s.151 of the Criminal Procedure Code or s.147 (4) of the Evidence Act it is clear that the court was in fact recalling a witness for further examination, as the sections quoted do not relate to calling of defence witnesses.

B The trial court's approach in treating courts 1, 2, 3 and 5 together cannot be faulted as the evidential requirements are more or less the same for all these counts, notwithstanding that count one was for soliciting and the other counts were for obtaining advantage without

consideration or for a consideration that the appellant knew or had reason to know was inadequate.

C The trial court found that the loans involved in counts 1, 2, 3 and 5 were solicited and received. There cannot be much dispute about this as even the defence admitted soliciting and receiving the loans.

D The main issue was whether the loans were made for valuable and adequate consideration. On this issue the court said, "In his defence however the accused person showed that there was an interest of 1 per cent on the loans, and that the interest was in the form of bags of maize to be sold at a profit. Even the givers of the loans mentioned the "bags of maize" element of the loans, and each E claimed he received forty (40) bags of maize from the accused person. The accused is shown to have "paid" eighty bags of maize to the two loan givers. The court went on to note paragraph 10 of the appellant's reply to the notice served on him by the Anti Corruption Squad, in which paragraph F the appellant stated that he had a 25 acre farm that he jointly cultivated with 3 other people. The court also noted a receipt showing that the appellant had on 6.5.82 bought maize from National Milling Corporation. The court said it did not believe that the maize was bought for members of the G R.T.C. staff working with the appellant but gave no reasons for this finding. Commenting on the receipt that the appellant produced to show that he bought 30 empty gunny bags from Gapex the court said that this was not sufficient to prove that appellant in fact harvested maize. The court then made the crucial finding that the maize story was a cover up story to hide the fact that the loans were H without consideration.

Learned counsel for the appellant argued that the evidence of PW.3 Selemani Abubakar was wrongly discarded by the trial court as he was wrongly treated as a hostile witness. I find merit in this argument. PW.3 was declared hostile when he stated that he gave the appellant a loan of I Shs.15,000/= and a loan of Shs.85,000/=. The court granted the prosecution leave to treat PW.3 as hostile

because in the statement PW.6 recorded from this witness, the witness said there was a loan of A Shs.15,000/= and there was no mention of a loan of Shs.85,000/=. It was held in Teddy Lucas v R. [1977] LRT 33 that not every witness that gives unfavourable evidence is hostile, for a witness may only be found to be hostile if he prevaricates or suppresses the truth in an endeavour to destroy or B damage the case of the party that called him. The same proposition is supported by Sarkar on Evidence, 11th edition, at p. 1317. In this case count five alleged that the appellant obtained a loan of Shs.85,000/= from PW.3. If then PW.3 came to court and said the same thing in that he gave a loan of Shs.85,000/= to the appellant, was PW.3 destroying the prosecution's case or building it up? C

In addition to this very basic irregularity this court finds that despite PW.6's ardent denials, PW.3 must have told him of the Shs.85,000/= loan. If he did not, what was the basis for including count No.5 in the charge sheet? D

From all this, this court finds that the court misdirected itself in declaring PW.3 as hostile and in discarding his evidence.

Both PW.2 and PW.3 testified for the prosecution. They were presented as witnesses of truth and in so far as PW.3 was wrongly declared hostile, he was also presented as a witness of truth by the E prosecution. In making its finding of fact that the loans were without valuable and adequate consideration the trial court treated the evidence of these witnesses as if it were part of the defence case. The Court was aware of the problem when it commented that, "Even the givers of the loans F mentioned the bag of maize elements of the loans." This court finds that this was an erroneous approach to the evidence as a whole as there was no basis for treating PW.2's and PW.3's evidence as if it were defence evidence. In view of the evidence of these two witnesses the finding that the loans were for a consideration that was inadequate or which the appellant had reason to believe to G be inadequate, cannot be supported.

On the 7th count the trial court found the charge proved. The particulars on this count read:

Ben Zuberi Mwamba, being a public officer, on or about the 9th day of August, 1982 in consequence of H investigations carried on pursuant to s.8 (1) of the Prevention of Corruption Act, 1971, was found to have constructed a house on plot 239 Makole in Dodoma valued at Shs.306,000/= of which value Shs. 273,000/= is reasonably suspected to have been corruptly or otherwise unlawfully acquired. I

1984 TLR p181

D'SOUZA Ag J

A The findings of the trial court relating to this count can be noted before they are scrutinised. The court first noted that the amount of Shs.273,000/= charged in the seventh count was the difference between the value of the house as per PW.7's valuation report and the T.H.B. loan of Shs.33,000/= B which the appellant obtained for building the house. The court then noted that PW.7 based his report from the year shown in the title deed - i.e. 1975 and went on to say, "Then he valued the whole house after valuing comparable properties in Dodoma town whose reports he produced as Exhibits V.1 and V.23. The accused person disputed the valuation report and says that he started C building the house in 1973. The accused produced a building plan dated 8/11/77 which showed that in 1977 the area shaded in red in the plan, which is about three quarters of the whole house was complete. The accused also produced receipts to show the relative cheapness of building materials D in 1977. The accused went on to show how he kept poultry while in Dar es Salaam. This poultry business is the source of extra income on the accused's part as he himself maintains.

The accused says he started building the house in 1973 but the valuer says the title deed to the E house is dated 1975. The accused did not dispute this allegation. Since the house is situated in a surveyed area the accused could not build without getting title to the plot. The accused did not say that he started construction before the plot was allocated to him, so the logical conclusion is that the accused started construction after getting title to the plot. The valuer was therefore right in using F 1975 as the base year on which his report is based. I discount the accused's allegation and that of his witnesses that he started building a house in a surveyed area two years before he got title to the land. The operative year must be the year of the title deed 1975. This is why even the plan G produced by the accused himself is dated 1977, two years after the title was issued to him. The accused could not produce any document like a building

permit to show that he started construction in 1973. This is strange in this case where the land is surveyed. Since the basic year is 1975 the H valuation report reflects the correct value of the property. The court accepts the valuation report as the correct statement of the correct value of the house and not the fictitious values which had been pushed back two years before the grant of the title. The report shows that the value of the house is Shs.306,000/=. Deducting the loan from T.H.B. to the accused Shs.33,000/= this leaves Shs.273,000/= I unaccounted for. The valuer said the house had two parts: an out building which was complete and the main house which

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D'SOUZA Ag J

was not complete at the time of valuation. the accused and his wife said that they used their salaries A to build the house between 1973 and 1976. I have discounted this story because in 1973 there was no title to the plot so they could not have started building in 1973. If anything they should have started in 1975 after the grant of title to them. The court went on to calculate the appellant's total B earnings from his salary from 1971 to 1981 and concluded these would amount to Shs.97,935/75." Thereafter the court went on:

Even if the accused spent the whole of his salary on the house it would not have been sufficient to build even C half the house he built. Let alone the insufficiency of the salary, the notice served on the accused showed that in 1981 and 1982 the accused had an expenditure of Shs.311,299/90. This is an average expenditure of about Shs.13,000/= per month for the period. The highest salary the accused got was Shs.5,065/= per month D before deductions, yet he spent more than twice his gross pay at certain periods!

This expenditure was over and above the amounts put in the construction of his house in Dodoma whose E visible resources were a loan of Shs.33,000/= only. The other source given by the accused is poultry keeping but in the reply to the notice the accused did not mention poultry keeping. He only mentioned his salary and that of his wife as well as a T.H.B. loan of Shs.33,000/=. The story of poultry keeping in Ilala mentioned F during the defence is an afterthought which I find not credible and hereby dismiss.

I find it proved that no satisfactory account has been given on the source of funds of building the house situated on plot 239 Makole area in Dodoma town. I find the 7th count proved and I convict G the accused as charged."

This court has endeavoured to reproduce in detail the findings and arguments of the trial court. The trial court found that the valuation report was based on 1975 as the base year. However I have been H unable to find any such statement in the evidence of PW.2. In fact what he said was, "The current market costs of construction I took as a factor in my valuation is the value as at September 1982." In Exhibit 'V' - the valuation report - the same thing appears. The report is dated 3.9.81. In the report PW.7 says, "My opinion of value is based on evidence availalble of similar properties built I

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D'SOUZA Ag J

A recently in the locality." In the next paragraph he says that the "current market cost of construction" of the house was Shs.306,000/=. There is nothing in the evidence to support the trial court's findings that the valuation was based on 1975 as the 'base' year.

B The next finding was to the effect that since the title deed was issued in 1975 then no construction could have taken place before 1975. In his initial reply to the Anti-corruption Squad the appellant stated that he started construction in 1973. The squad made a very thorough investigation in this case. I find it difficult to believe that they failed to check on the history of the C plot and the house. The trial court said that the appellant could not produce any document like a building plan, letter of offer or building permit to show that he started construction in 1973. The trial court totally failed to consider the evidence of DW.3 on this issue. DW.3 Thomas Nyaulingo stated that he built a substantial section of the house from 1973 to 1975.

D The next finding of the second court is its rejection of the appellant's story that he had a poultry keeping project. The court's reasoning on this was that because the appellant did not mention anything about poultry keeping in his reply to the notice form to Anti Corruption Squad, then the E whole story of poultry keeping mentioned in the defence was an afterthought. In paragraph 18 of Exhibit 'N' the appellant stated, "Nilikuwa nikifuga kuku kwa wastani wa kuku 600 hadi 800 kwa mwezi - banda ilikuwa nyuma ya nyumba niliyokuwa nikiishi Ilala ...." Again in paragraph 31 the appellant made the same statement and even suggested the names of two people in Dar es Salaam F who could confirm the existence of the poultry project. The basis for the court's reasoning on this issue would appear to be erroneous.

The whole case for the prosecution on count 7 was based on the valuation report. The valuer did G not take the time factor and inflation in the prices of building materials into account. To that extent I find that the valuation report, based as it is on 1982 prices, was worthless. I find that, even without taking into account the other misdirections on the evidence set out above, this destroys the very basis of the prosecution's case on count 7.

H Aside from this, this court finds that the trial court did not make any attempt to analyse the ingredients of the offence with which the appellant was charged on count 7. The crucial and final finding of the trial court was:

I I find it proved that no satisfactory account has been given of the source of funds of building the house situated on plot 239

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D'SOUZA Ag J

Makole area in Dodoma town. I find the 7th count proved ... A

The question that arises is whether s.9 (1) of the Prevention of Corruption Act 1971 creates an offence of failing to give a satisfactory account of sources of funds used to build a house or of one's wealth generally. B

The charge on the 7th count appears to be mixing up together in one count the ingredients of the offences created by s.9 (1) and s.9 (1) A of the Prevention of Corruption Act 1971, as amended by Act 23 of 1973. C

Considering that under s.9 (1)A the court can enter a conviction when the proceedings are commenced and concluded under s.9 (1),
I find that no prejudice was occasioned to the appellant in warning him of the two-pronged nature of the charge against him.
The provisions of s.9(1) were discussed at length in the case of D.P.P. vs. Felician Tibilikirwa [1973] E.A. 440 (C.A.). At page 442 of the report the Court of Appeal had this to say: D

An official found in possession of property apparently disproportionate to his means may have acquired it by corruption, or in some way which is illegal but not corrupt, or possibly in a way which, although not illegal, E might be regarded as discreditable. There must be something in the circumstances that raises a reasonable suspicion of corruption.

In the case of John Kichuri v R. [1978] L.R.T. n.27 Lugakingira Ag. Judge as he then was held that F before the burden of proof shifts to the defence in offences involving being in possession of property corruptly acquired contrary to section 9(1) of the Prevention of Corruption Act, two stages must be covered:

(a) There must be reasonable suspicion that the accused corruptly acquired or received the property found G in his possession

(b) The prosecution must adduce evidence showing that the property was acquired in circumstance suspicious of corruption. H

The same court held further that to prove the charge it is not enough to show that the property was acquired illegally or through discreditable means because such property may not necessarily be I corruptly acquired, and that failure by the accused to explain how

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D'SOUZA Ag J

A he acquired the property will not in itself justify an inference that it was corruptly acquired.

Section 9 (1) comes into effect where a public officer "may reasonably be suspected of having corruptly acquired" property and comes into effect where "the circumstances were such as to give B rise to a reasonable suspicion that the accused may have otherwise unlawfully acquired the property." There is slight difference in wording but the effect of the wording appears to throw the initial burden on the prosecution to produce evidence that the property was acquired in C circumstances that raise reasonable suspicions of corruption or unlawful acquisition.

As was envisaged in the Tibilikirwa and Kichuri cases quoted above there could be circumstances whereby the accused acquired the property by discreditable means but not necessarily corruptly or unlawfully.

D Considering the circumstances of this case the prosecution's case, taken at its best, only proved that the appellant did not give a good account of how he got some of the money he used for building his house. There was no evidence to raise suspicion of corrupt acquisition or unlawful E acquisition of the property. The prosecution's evidence amounted to saying that the appellant built a house and its value was Shs.346,000/=, assuming that that was the correct value. Since the issue was the source of the money used to build the house, this court finds that the prosecution had to lead sufficient evidence to show that there was a reason to raise a reasonable suspicion that the F same was corruptly or unlawfully acquired. No attempt was made to lead

such evidence. Had PW.2 and PW.3 not testified that the loans bore interest at 10% or more, it is quite possible that the evidence of the loans could have satisfied this requirement. However as this court has found that G the loans were, on the evidence led by the prosecution, made for valuable and adequate consideration these transactions cannot be taken to raise a reasonable suspicion under s.9 (1) and s.9 (1)A. For this additional reason and because this court has found that the prosecution had failed to establish the true construction cost of the building, I find that the appellant is entitled to an H acquittal on the 7th count as well.

In the event this appeal is allowed in its entirety and the convictions, which are not supported by the Republic, are quashed and the sentences are set aside. The appellant is to be released from I prison forthwith unless otherwise lawfully held.

Appeal allowed.

1984 TLR p186

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[zRPz]NKIRWA SUMARY v REPUBLIC 1984 TLR 186 (HC)

Court High Court of Tanzania - Arusha

Judge Mwakibete J

October 28, 1984

(PC) CRIMINAL APPEAL 14 OF 1984 B

Flynote

Criminal Law - Forcible entry on land - Ingredients of the offence - Penal Code, section 85.

-Headnote

The appellant was convicted and given a conditional discharge for the offence of forcible entry into another's land. The facts established showed that he had cultivated and planted maize on disputed C land.

Held: (i) To constitute forcible entry it must be shown that the entry was in a violent manner; in the circumstances of this case this element was lacking. D

Case Information

Appeal allowed.

No case referred to

[zJDz]Judgment

Mwakibete, J.: This is a 2nd appeal by one Nkirwa Sumary. He was convicted before a court of 1st E instance, at Maji ya Chai, of forcible entry c/s 85 Penal Code., as applied, and given a one year conditional discharge under s.38 (1) Penal Code. His appeal to the District Court, at Arusha, against both the conviction and sentence was dismissed. Hence this appeal. F

The allegation was that he had forcibly entered on and laid claim to the shamba, the property of one Noel Sarakikya. It is said he had cultivated it and planted maize unauthorized.

Appellant's defence was that he had cultivated a shamba which he genuinely and reasonably believed was his property by inheritence. G

Each of them then called witnesses to establish his claim over the shamba. And it happened that Noel Sarakikya had a stronger case than that of the appellant when the trial court convicted him of forcible entry. Section 85 of the Penal Code says: H

Any person who, in order to take possession thereof, enters any land or ..... in a violent manner, whether such violence consists in actual force applied to any other person or in threats on in breaking open any house or in collecting an unusual number of people, is guilty of the misdemeanour termed 'forcible entry'. I

1984 TLR p187

A So that for one to be convicted of 'forcible entry' one must be shown to have entered on the land in a violent manner, as provided in the section quoted. I have carefully gone through the proceedings before the court of 1st instance but no where is evidence of 'violence' shown in terms B of the law as above. Which means that, on the evidence, a necessary ingredient for the offence of forcible entry was lacking. The conviction was therefore lame and on the basis of this alone the same cannot be allowed to stand - it is quashed and the sentence set aside.

C There is yet another aspect of this case. The nature of the allegation and the defence thereto clearly show that the case involved a dispute over ownership of the shamba in question. That being the case, the controversy is one that ought to have been resolved by civil litigation instead of criminal proceedings. The Republic agrees with the appellant that the case was more of a civil nature D than criminal - as such it would not support the conviction. The appeal would also succed on this point.

This means that because the appellant (Nkirwa) was in occupation of the shamba when criminal proceedings were brought and he still asserts that the shamba belongs to him - Noel Sarakikya may E bring a civil action to establish ownership of the same if he so desires. Of course civil action will be unnecessary if Nkirwa abandons his claim over the shamba.

F Appeal allowed.

1984 TLR p187

G

[zRPz]SCOLASTICA PAULO v REPUBLIC 1984 TLR 187 (HC)

Court High Court of Tanzania - Arusha
Judge Mushi J

April 29, 1986

H CRIMINAL APPEAL 40 OF 1984

Flynote

Criminal Law - Malicious damage to property -Uprooting of poles - No proof of damage - Whether the offence committed.

Criminal Practice and Procedure - Sentencing - Concurrent sentences - Two sentences of fine or I imprisonment in default thereof imposed - The alternative terms of fine ordered to run concurrently - Whether proper.

1984 TLR p188
MUSHI J
-Headnote
The appellant was charged with two offences. One of them being malicious damage to property in A that she had uprooted poles planted by another person. No evidence to show damage to the poles was adduced. Following conviction on both counts the magistrate sentenced appellant to pay fines or imprisonment for six months on each count. The alternative sentences were to run concurrently. B
Held: (i) To constitute malicious damage to property there must be evidence of damage or destruction of the property;

(ii) Where a person is convicted on more than one count and the court is minded to impose a C sentence of fine or imprisonment in default, then the alternative sentences of imprisonment cannot be ordered to run concurrently, Penal Code, (Cap.20) sections 36 and 29(iii)(a).
Case Information
Appeal allowed D
No case referred to.
A. Maghwai for the Republic.
Flynote
Mushi, J.: Scolastica Paulo, the appellant, in this case, was charged with two counts. In the first E count she was charged with the offence of using abusive language c/s 89 (1) of the Penal Code. And in the second count, she was charged with malicious damage to property c/s 326 (1) of the F Penal Code. She was convicted on both counts and sentenced to a fine of shs.1000/= or six months' imprisonment in default on the first count and shs. 2000/= or six months' imprisonment on the second count. It was further ordered and I quote:- G

"In the event of failure to pay the alternative sentences of imprisonment to run concurrently".
Scolastica is appealing against both convictions and sentences imposed on her. H
Before I deal with the appeal, I wish to correct one error which was committed in sentencing the appellant. As I have quoted above, the trial court ordered that in default of payment of fines the alternative sentence was to run concurrently. This is not allowed by law. The proviso to section 36 of the Penal Code reads and I quote: I
1984 TLR p189
MUSHI J
A Provided that it shall not be lawful for a court to direct that a sentence of imprisonment in default of payment of a fine shall be executed concurrently with a former sentence under section 29 (iii) (a) or with any part such sentence.
B What this section means, and it has always been the practice in the courts, is that where a person is convicted on more than one count and the court is minded to impose a sentence of fine and in default of the payment of the fine an alternative term of imprisonment is imposed, then such term of C imprisonment in default of the fine cannot be ordered to run concurrently. The

order of the trial court that the sentence of imprisonment in default of fine should run concurrently is accordingly quashed.

Turning now to the appeal itself, as far as the first count is concerned, I am satisfied that the appeal D was lodged without any sufficient ground of complainant. The evidence was overhelming and those who testified were, as the learned trial magistrate found truthful and believable. There is no question at all that the appellant uttered the abusive language which was, to say the least, very vulgar. The substance of the abuse was, more likely than not calculated to cause a breach of the E peace. The sentence imposed can not be said to be excessive. The appeal on this count is dismissed in its entirety.

As regards the second count, the evidence is not cogent enough to support the conviction. The evidence on record merely states that the appellant uprooted poles worth shs.4,000/=. There is no F information as to what type of poles these were and in what manner they were uprooted and for what purposes they were erected. Furthermore and most important there is no evidence as regards in what manner the said poles were damaged. The mere fact that the appellant may have uprooted G some poles does not necessarily amount to malicious damage to those poles. Section 326(1) of Penal Code under which the appellant was charged creates an offence only when some one:

> ... wilfully and unlawfully destroys or damages any property...

H Unless it is shown that by uprooting a pole that pole was destroyed or damaged, the act will amount to a criminal offence under the section. For these reasons, the appeal in the second count is allowed. The conviction is quashed and sentence is set aside. The fine which was paid is to be refunded to the appellant.

I Appeal allowed.

1984 TLR p190

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[zRPz]WILFRED MLANGA MAREALLE v REPUBLIC 1984 TLR 190 (HC)

Court High Court of Tanzania - Arusha

Judge Chua J

August 2, 1985

CRIMINAL APPEAL 106 OF 1984

Flynote

Criminal Law - Failure to comply with a lawful order - Essential ingredients of the offence - Penal Code, B section 124.

Criminal Law - Criminal trespass - Ingredients of the offence - Penal Code, section 299(1).

Criminal Practice and Procedure - Injunction - When interim injunction granted in criminal cases - Primary C Courts Civil Procedure Rules 1974, GN 310, section 17(1)(2).

-Headnote

The appeal arose out of rival claims to a piece of land by members of the same family, as a result of which one member was alleged to have criminally trespassed on the land, maliciously damaged some D property and disobeyed a court order. The facts are set out in the following judgment:

Held: (i) An intention to annoy is the requisite mens rea for the offence of criminal trespass; E

(ii) whereas in civil proceedings an interim injunction may be issued ex-parte where the urgency of the matter precludes the possibility of serving the other party, in criminal proceedings it does not issue until an accused is formally brought before the court and charged. F

Case Information

Appeal allowed.

No case referred to G

J. Shayo for the appellant

Magohe for the Republic

[zJDz]Judgment

Chua, J.: The appellant Dr. Wilfred Mlanga Marealle was charged in the District Court of Moshi as follows: H

1. Criminal trespass c/s 299 (1) (a) of the Penal Code, it having been alleged that on the 15/12/80 at Marangu Lyamrakana village he unlawfully entered into the farm of Edward David Marealle with intent to annoy. I

A 2. Malicious damage to property c/s 326 (1) of the Penal Code. He is alleged to have uprooted 15 banana plants belonging to Edward Marealle.

3. Failing to comply with a lawful order c/s 124 of the Penal Code. He allegedly failed to comply with an B injunction order issued by Marangu Primary Court in Criminal case Nos. 6/81.

The appellant was convicted in all the counts. In respect of the 1st count he was sentenced to a fine C of 2,000 Shs. or 6 months' imprisonment in default, while for the 2nd count he was sentenced to a fine of 1000 Shs. or 6 months' imprisonment in default and for the 3rd count he was sentenced to 12 months' imprisonment but the sentence was suspended for 9 months. It was also ordered that the D appellant should refrain from entering the disputed land from the 6th August 1984. The appeal is against the conviction, sentence and order of the District Court.

For a proper understanding of the case it is important to refer to its background. Both the appellant and the complainant are brothers begotten by the late Chief David Mlanga Marealle. Their mothers E were different. The late Chief David Marealle had many wives and was blessed with many children. When he died in 1962 he had bequeathed land to all his male children except Akilei who was then a baby. There was a portion of land which appeared not to have been bequeathed specifically to any child, though the complainant had been allowed by his father to graze his cattle F there. That piece of land was considered by some members of the clan to have been the rightful inheritance of Akilei while the complainant and others did not

subscribe to that view. In 1968 Akilei Marealle suing through his next friend, the appellant, filed a suit in the Primary Court of Marangu G claiming for the piece of land. He lost the case. The appellant appealed to the District Court Moshi on behalf of Akilei. The District Court Moshi reversed the decision of the primary Court and awarded the land to Akilei. The complainant appealed to the High Court. The appeal was allowed H with costs. The appellant on behalf of Akilei Marealle filed a suit in the Customary Land Tribunal of Kilimanjaro Region claiming for the same land. The Tribunal ruled that the matter was res-judicata and advised the appellant to apply for leave to appeal against the decision of the High Court to the I east African Court of Appeal. The appellant did not pursue the matter further as advised.

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CHUA J

Sometime in early October 1980 Mama Monica the mother of the complainant died. On the 7/10/80 A an all male family council was convened by the chairman of the clan Mangi Mkuu Thomas Marealle II. What happened in that meeting is a matter of controversy in this case. According to the complainant, he was asked to give the disputed land to Akilei so that the wish of his mother that the B family should be reconciled be fulfilled. He however refused to release that land. On the other hand according to the appellant, Mama Monica had said before her death that she had had dreams in which her husband directed her to settle the land dispute before her death. In the funeral meeting the land question was brought up. The complainant was asked to release the land to Akilei. The C complainant agreed to release the land from that day and the appellant was appointed to build a house for Akilei and his mother by using subscriptions from family members. Pursuant to what was agreed at the family meeting, the appellant cleared the ground and started building a house. He D denied having seen the injunction order alleged to have been pasted on the building nor received such order by dispatch. He only admitted having received summons which he obeyed by going to the Primary Court Marangu. E

The crucial question which the trial court had to decide was whether the complainant agreed to give the land to Akilei. Although in his evidence the complainant denied having done so, the evidence of Benedict Marealle (P.W.3) was that the complainant agreed to give the land to Akilei and that the clan would contribute towards the cost of putting up a house there. After the agreement was F reached the male members of the clan went to the house of the complainant to brief his wife. The wife fully endorsed the decision of her husband and went on to entertain the clan members with "mbege, a traditional Chagga brew. Mangi Augstine Marealle (D.W.2) told the trial court that after the clan asked the complainant to release the land he agreed to do so. Then the clan members shook G hands with the complainant. The shaking of hands, according to the witness, was an indication that the land reverted back to the clan. I quote the exact words of the witness on this point: "the land became clan property soon after P.W.1 released it at the meeting. It was thus the duty of the H sub-committee to hand over the land to Mama Veronica (the mother of Akilei)".

Since there was controversy on what exactly was agreed on in the clan meeting I found it necessary to summon the chairman Chief Thomas Marealle II. It became necessary to summon him because I minutes purporting to have been taken at the meeting bore signatures
1984 TLR p193
CHUA J
A of all the participants except that of the Chairman and the complainant. The minutes tendered as defence Ext.1 show that the complainant agreed to give the disputed land to Mama Veronica and her children and the appellant was instructed to build a house for them out of contributions made by B clan members. Those who signed the minutes are (1) Mangi Mwitori Petro Marealle, (2) Mzee Benedict Marealle. (3) Mzee Lokila Marealle (4) Mangi Agustin Marealle (5) Ndugu Gaspar Marealle (6) The appellant (7) Ndugu Frank Marealle (8) Ndugu Alfonce Marealle and (9) Ndugu Archibald Marealle.
C In this court Chief Thomas Marealle deposed that he refused to certify the minutes partly because some important matters were omitted and partly because it was wrong for those who attended the meeting to sign them before he certified them. According to him the minutes had D omitted the fact that Edward Marealle was supposed to hand over the land to Akilei after assessment of the value of any improvements and refund of 600 Shs. incurred in prosecuting the suit, already referred to, in the High Court. Otherwise Chief Thomas Marealle was categorical that Edward Marealle had agreed to surrender the land to fulfil the wish of his mother that the clan E members should be reconciled by settling the land question which had driven a divisive wedge into the clan. On the other hand Dr. Archbald Marealle (D.W.3), who, according to Chief Thomas Marealle, was responsible for keeping the minutes, was of the view that the minutes were correctly F recorded. In this he was supported by Mangi Agustine Marealle (D.W.2) and Benedict Marealle (P.W.3) both of whom testified that what was agreed upon is what is recorded in the minutes. There is no reason why they would have signed them if they were inaccurate for there is no evidence that they are illiterate. The signatures of the other attendants, which were not challenged, would appear G to lend strength to the view that the minutes represented substantially what was agreed at the clan meeting. For ease of reference I reproduce below the contents of Defence Ext. (1).
H Mkutano ulifunguliwa mnamo saa 6.30 kwa sala iliyoongozwa na Mwenyekiti. Mwenyekiti akauelezea mkutano madhumuni ya kukutana siku hiyo ni kusahihisha tofauti iliyokuwepo kati ya baadhi ya wanandugu wa marehemu Mangi David Marealle pamoja na kumpatia Mama Foronika (sic) na watoto wake maskani yake I kwani hapo alipo sio pake.
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CHUA J
Kabla ya marehemu Mama Monica kufariki dunia, alitoa wosia wake kuwa hakupenda ugomvi uliokuwepo A kati ya baadhi ya wanandugu uendelee na ilikuwa nia yake kabla ya kuaga dunia kuleta amani katika ukoo wa Mangi Mlanga. Mkutano ulielezwa kwamba mama marehemu alikwisha agiza mbege zitayarishwe na ndizi kwa madhumuni ya kutisha pombe na kumwalika Mangi Mkuu aje kusimamia kupatanisha kwa wanandugu B hao. Kauli hii aliitoa akiwa kwenye matibabu Moshi. Bahati mbaya hakupata nafuu ya kutimiza lengo hilo.

Baada ya majadiliano marefu, juu ya kumpatia mama Foronika na jamii yake mahali pa kuishi ukoo ulikubaliana kwa pamoja kuzingatia kauli ya mama Monica na kwa kufanya hivyo ukoo ulimtaka Edward C kuzingatia kauli ya mama marehemu na ya ukoo na kutoa lile shamba ambalo ndilo chanzo cha ugomvi kati yake na baadhi ya wadogo zake. Wanandugu wote waliohusika na ugomvi huo, walipewa nafasi ya kuzungumzia kwa kirefu juu ya tofauti zao. Baada ya hapo Ndugu Edward alikubali bila ya masharti yeyote D na kwa hiari yake kutimiza kauli ya mama ya kuleta amani nyumbani na kutoa hilo shamba kwa makazi ya mama Foronika na watoto wake. Ndugu Edward alizungumzia juu ya fidia ya Shs.600/= ambazo alitumia kuhusiana na ugomvi wa shamba hili siku za nyuma. Ilikubalika kwamba arudishiwe fedha hizo kupitia E kwenye mikono ya Mwenyekiti. Mara tu baada ya tamko la Ndugu Edward, ukoo wote ulifurahi na kuamka na kushikana mikono, huku Mwenyekiti akiunganisha wanandugu waliokuwa na ugomvi. Baada ya yote haya na F amani kuja kati yetu wanandugu, Mwenyekiti alitoa hotuba fupi ya kuwashukuru wote kwa jinsi mkutano ulivyopata mafanikio ya amani ambayo kwa muda mrefu ilikuwa inatafutwa. Kabla ya kufunga mkutano Ndugu Edward alisema tangu leo shamba ni mali ya mama Foronika na watoto wake lakini alitaka ukoo umwonye aache kumnyanyasa na amtambue kwamba yeye ni mwanae na makamu wa Mwenyekiti wa mji huu. Ukoo G uliagiza kwamba:

1. Kamati ndogo iteuliwe na Mwenyekiti aende kumkabidhi ardhi huyo mama Foronika na papo hapo H aonywe pamoja na wanawe waache tabia ya kudharau ukoo.
2. Ukoo uliagiza Ndugu Wilfred Marealle atengeneze ramani ya nyumba kama anayokaa sasa na wanandugu wote wachangie ujenzi wa nyumba hiyo na Wilfred asimamie ujenzi huo na awaarifu ndugu zake. I
3. Wanandugu tuwe tunakutana mara kwa mara kuzungumzia

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CHUA J

A nafasi zetu na sio kukutana tu kwenye kilio, haswa sasa kwamba mwenyekiti wa jamii ya Baba Marehemu Mangi Mlanga yuko nyumbani.

Kabla ya kufunga mkutano, ukoo ulionelea kwamba ni vizuri kwenda nyumbani kwa Ndugu Edward na B kumweleza mke wake matokeo ya mkutano huu. Baada ya kauli hiyo Mwenyekiti akafunga mkutano yapata saa tisa mchana kwa sala.

Ndipo sote kwa pamoja tukaondoka na kwenda kwa Ndugu Edward ambapo tulikaribishwa vizuri sana na C mkewe. Mke wa Ndugu Edward alielezwa kikamilifu uamuzi na makubaliano ya mkutano wetu, nae akafurahia amani hiyo iliofikiwa na ukoo na baadae akatushika mikono wote. Tukaendelea na viburudisho nyumbani kwao.

It will be seen from the minutes as quoted above, that they conform to what Benedict Marealle, Archibald Marealle (D.W.3) and Mangi Agustine Marealle (D.W.2) stated was discussed and agreed D upon at the clan meeting. Chief Thomas Marealle agrees that in substance the complainant agreed to release the land only that he contended that there were conditions precedent before the complainant could release the land. The complainant denied having agreed to release the land at all E and thereby adopted a position that was not supported by the rest of the witnesses in the case including that of a prosecution witness. Taking into account the fact

that the minutes bore 9 signatures of those who attended the meeting and no less than three witnesses said that indeed that F is substantially what was agreed upon I find that the learned trial Principal District Magistrate erred in not giving weight to what was decided by the clan by referring either to the minutes or to the oral evidence of those who attended.

G Chief Thomas Marealle opined that the title to the land did not pass to Akilei and his mother because no assessment of compensation had been made, and no handing over had been effected. In this view he is probably correct. But that is not the only way of looking at the matter. According to Mangi Agustine Marealle as soon as the complainant said he was giving the land to Mama H Veronika and her children title to the land passed to the clan which would then arrange to pass on the title at a handing over ceremony. Since the preponderance of evidence in this case established that indeed the complainant said he was handing over the land to Mama Veronica from the day of the meeting then this in my view divested him of title which passed on to the clan which was then I supposed to arrange a handing over ceremony and pass on the title to the donees.

1984 TLR p196

CHUA J

If that view is correct then by the time the appellant started clearing the land and constructing the A house the complainant no longer had title to the land, he having passed it on to the clan. If this view is wrong then by the time the appellant cleared the land and started building the house he had the express permission of the clan and the complainant in which case there was no intention to annoy. B Consequently the offence of criminal trespass was not proved at all in the absence of the requisite mens rea.

As regards the offence of malicious damage to property the prosecution had to prove that in uprooting some banana plants the appellant acted maliciously. But since it is clear from the C evidence as a whole that the appellant was an agent of the clan and the humanitarian act of building a house for Akilei and his mother inevitably involved the removal of plants, the view taken by the learned trial magistrate that he acted maliciously can hardly be supported without incurring the risk of appearing irrational. I am unable to support the conviction for malicious damage to property. D

As regards the 3rd count it was alleged that the appellant had failed to comply with an injunction issued by the Marangu Primary Court in Criminal Case No. 6/81. Three questions were crucial in this count. First whether an injunction was served on the appellant. Secondly whether he deliberately E flouted it and thirdly whether the injunction was lawful. As regards the first question Eliueter Masawe (P.W.7) the then Primary Court Magistrate at Marangu, told the District Court that on the 15/1/81 the complainant lodged a complaint to him that the appellant had trespassed on his land F despite the fact that he the complainant, had been ajudged the lawful owner of that land. On the strength of the copies of judgments and other documents which the complainant showed the magistrate, criminal case no. 6/81 was opened and an injunction issued. A copy of the order was handed over to a messenger one Oviviti Atwani (P.W.2) for posting on the building under G construction. There is evidence that the order was seen by the workers at the site but no admissible evidence to show that the appellant

who lived at Moshi saw the injunction. P.W.7 said that the complaint was lodged on the 15/1/81 and the injunction was issued on the same day whereas Oviviti H said that he was handed over the injunction on the 5/1/81. Oviviti must have got confused on the dates because another messenger Eliaringa Ndeliso Keni said that he was given the original copy of the injunction on the 15/1.81 for dispatching to the appellant at Moshi.

Although the accused denied having received the order, there as evidence that he signed a dispatch I book which was tendered in

1984 TLR p197

CHUA J

A court. The entry on the dispatch book showed that what was delivered was an injunction order. The substance of the injunction order was that the appellant should desist from interfering with the disputed land and stop constructing the house he was putting up. As regards the copy of B injunction there was nothing beyond mere hearsay that he had acted contemptuously by removing it and ordering his workers to carry on with the work. No person was called to testify that he saw the appellant do that. The hear-say information apparently prompted the Primary Court Magistrate to issue a Warrant of Arrest which was not executed in time before the case was transferred to the C District Court. But since the original order was served on the appellant as shown on the dispatch book and there is evidence that by 23/1/81 the workers were still at the site the appellant can escape liability only if the injunction was not a lawful order. The question then is whether the injunction was lawful.

D The first defect with the injunction is that it was obtained through a fraud. P.W.7 stated categorically that had the complainant told him that the appellant had been allowed by the clan to build the house he would not have issued it. The second defect is that the injunction was issued in E a criminal case while it is an order issuable in a civil suit. The power of the Primary Courts to issue injunctions is spelled out under S.17 (1) (2) of the Primary Courts Civil Procedure Rules (G.N. 310/64) which provides:

F An application may be made by any party at any time after a proceeding has been instituted for an injunction restraining any person from alienating, destroying, wasting, damaging or otherwise injuriously dealing with any property the subject of the proceeding.

G (2) Upon receiving an application under this rule the court may examine the applicant and if it is satisfied that grounds exist for ordering an injunction the court may make such order."

H Whereas in civil proceedings an interim injunction may be issued ex-parte where the urgency of the matter precludes the possibility of serving the other party, it is unthinkable to have an injunction issued in a criminal case before the accused is even aware of the charge against him. The Primary Court Magistrate did not in his evidence state under what provision of the Primary Court Criminal I Procedure rules he acted. I have been unable to find an enabling provision which allows a criminal court to issue an interim injunction

1984 TLR p198

before the accused is formally brought before it and charged. I am equally unable to find a A precedent in decided cases to support the procedure adopted. It was therefore incumbent on the

learned trial magistrate to quash the injunction of the Primary Court for being illegal and find that there was no order legally binding on the appellant. B
For the above reasons I allow the appeal in its entirety with the result that the convictions are quashed and sentences set aside. The fines should be refunded to the appellant.
The complainant should go to a civil court in case he finds it inexpedient to have the matter settled within the family. C
Appeal allowed.
1984 TLR p198
D
[zRPz]SAFINIEL CLEOPA v JOHN KADEGHE 1984 TLR 198 (HC)

Court High Court of Tanzania - Arusha
Judge Chua J

November 29, 1986
(PC) CIVIL APPEAL 16 OF 1983 E
Flynote
Probate and administration - Revocation of appointment of administrator of estate of deceased - Reasons that may justify such revocation. F
-Headnote
The appellant sought to revoke the appointment of the respondent as administrator of the estate of the deceased on the ground that he had misapplied or subjected the estate to loss or damage. It was G established on the evidence available that the administrator had underpriced some property sold and failed to account for the whereabouts of various other properties.
Held: (i) The sale of property at below the market value and failure to account for the whereabouts of H other properties in the custody of the administrator amounts to misapplication of the estate;
(ii) an administrator who misapplies the estate of the deceased or subjects it to a loss or damage is liable to make good such loss or damage. I
1984 TLR p199
CHUA J
Case Information
A Appeal allowed.
No case referred to
J.J.A. Mwale for respondent.
[zJDz]Judgment
B Chua, J.: In the Primary court of Same Safiniel Cleopa filed a suit in which she sought for an order of revocation of the appointment of John Kadeghe as Administrator of the estate of the late C husband of the applicant. The Primary Court dismissed the suit. The appellant appealed to the District Court without success and now appeals to this court.

From the mass of evidence adduced at the trial it was clearly established that the respondent John Kadeghe was the brother of the deceased and that he had been appointed administrator of the D estate with the unanimous consent of the other relatives of the deceased including the appellant. It was also established that he has administered the estate since the death of the deceased in 1972. The only question which was at issue was whether he had misapplied the estate or subjected it to loss or damage.

E The most important property that caused controversy was a motor vehicle of the deceased. According to the appellant, shortly before the deceased died he had a Land Rover which was in running order. The respondent sold the Land Rover for 2000 Shs. Out of the 2000 Shs. he deposited 1000 Shs in the accounts of the children of the deceased and used the balance for their welfare. The F sale of a Land Rover for 2000 Shs is a transaction that can hardly be believed especially when it is considered that the vehicle was in running order prior to the death of the deceased. Two thousand shillings could hardly have been sufficient to buy 4 tyres with their rims. What more evidence of G misapplying the estate did the Primary Court and the District Court require?

Next there were 4 heads of modern dairy cattle which were the property of the deceased. Since by the time the deceased died there is evidence that some of them were being milked they must have H delivered. The appellant claims for these cattle. The respondent replied that the cattle had died and that he sold the skins and from the money realized gave the appellant 75 Shs. One is bound to ask what disease killed all the 4 cattle? And what is even more pertinent is what happened to the I calves? The respondent failed to give a satisfactory answer.

1984 TLR p200

CHUA J

Then the appellant referred to two houses built by the deceased at Rogai but alleged to have been A demolished by the respondent. Where did the building materials such as iron sheets go? Other properties of the deceased which appeared not to have been distributed by the respondent were a gun, a Singer sewing machine, a bed, 25 metres of chicken mesh, a sprinkler, plumbing parts, a hose B pipe and a jerry can. In my view the evidence on record showed on a balance of probability that the respondent had misapplied the estate. S.8 of the 5th Schedule of the Magistrates' Courts Act, provides:

> An administrator who misapplies the estate of the deceased or subjects it to loss or damage shall be liable to C make good such loss or damage and an administrator who occasions loss to the estate by neglecting to get in any part of the property of the deceased shall be liable to make good the amount. D

The evidence on record shows that the respondent could have been sued under the above provision. Since the applicant had only sought for revocation the court had to decide whether there was good and sufficient cause to remake the appointment under S.2 (c) of the 5th Schedule of the E Magistrates' Courts Act. In my view misapplying the estate is a good and sufficient cause.

I accordingly allow the appeal with costs. The respondent should surrender any document evidencing his appointment immediately. The appellant and or her son who is now said to be of

the age of majority are at liberty to apply in the Primary Court to be appointed as administrators of the F estate jointly or severally and are at liberty to sue the respondent for the value of property he has failed to account for. G

Appeal allowed H

1984 TLR p201

A

[zRPz]HAKIMU MFAUME v REPUBLIC 1984 TLR 201 (HC)

Court High Court of Tanzania - Mtwara

Judge Maina J

November 1, 1984

CRIMINAL APPEAL 3 OF 1983

Flynote

B Criminal Law - Arson - Whether a previous quarrel and threat sufficient for conviction of the offence of arson.

-Headnote

The appellant had quarrelled with his wife whereof the wife ran to her father's house where the C quarrel continued. Later the appellant left his father-in-law's house threatening that he would do something harmful to his father-in-law. Shortly thereafter his father-in-law's house was ablaze. The appellant was subsequently charged and convicted of arson. On appeal:

D Held: (i) Although there may be strong suspicion against the appellant, suspicion however strong is not sufficient evidence to convict.

Case Information

E Appeal allowed.

Cases referred to:

1. Bosco & Lucas Sungura v R. [1967] HCD n. 186

[zJDz]Judgment

F Maina J.: The appellant, Hakimu Mfaume, was convicted of arson. He was sentenced to four years imprisonment. Aggrieved by the decision, he has appealed to this court.

The only evidence against the appellant was that he had quarrelled with his wife and they went G together to his wife's parents where the quarrel continued. The appellant is said to have threatened that he would do something to his father-in-law. He then left. About two hours later, his father-in-law's house was ablaze. The appellant was arrested and charged with burning the house. He denied the charge.

The learned trial magistrate held that the appellant must have burnt the house because of the earlier H threats he uttered. He cited the case of Bosco & Lucas Sungura v R. [1967] HCD n. 186. In that case the appellant had specifically threatened to set the complainant's house on fire. Shortly afterwards the house was seen on fire and the appellant was seen running away from the

scene. So, I apart from the threats, there was evidence that appellant was seen at the scene running away from the burning house. In the present case,
1984 TLR p202
however, the appellant was not seen at the scene when the house was on fire. There may be strong A suspicion against him because of the threats he uttered. But suspicion, however, strong is not sufficient evidence to convict. Anyone may have set the complainant's house on fire, and not necessarily the appellant. The previous quarrels with the complainant should not be a basis for B convicting the appellant without any other evidence. The learned State Attorney declined to support the conviction, and for good reasons.
This appeal is allowed. The conviction is quashed and the sentence is set aside. The appellant should be released from custody forthwith unless he is otherwise lawfully held. C
Appeal Allowed. D
1984 TLR p202
E
[zRPz]HEMEDI KANJUNJUMELE v REPUBLIC 1984 TLR 202 (HC)

Court Court of Appeal of Tanzania - Mwanza
Judge Nyalali CJ, Mustafa JJA and Kisanga JJA

April 6, 1985
CRIMINAL APPEAL 70 OF 1983
Flynote
Criminal Law - Uttering a false document - Permit to hold ngoma issued in contravention of an alleged quarantine - Whether the permit which was not required by law amounted to a false document in law - F Whether there was utterance as defined by section 5 of the Penal Code.
-Headnote
The appellant and seven other persons were jointly charged with the offence of disobedience of lawful order contrary to section 124 of the Penal Code. He was charged alone with another count of G uttering a false document contrary to s. 342 of the Penal Code. The seven other accused persons pleaded guilty to the first count and were accordingly convicted on their own pleas of guilty. The charge was however withdrawn in respect of the appellant upon his pleas of not guilty. It was H alleged that the appellant in his official capacity as ward secretary, issued a written permit allowing the other seven accused persons to stage an initiatory ngoma known as "muzuka" contrary to an alleged quarantine imposed over Tunduru district by the District Medical Officer to control the outbreak of cholera. The appellant was subsequently found guilty and convicted of uttering I
1984 TLR p203
MSUMI J
A false document contrary to s.342 of the Penal Code and sentenced to imprisonment for six and half months. He appealed against the conviction and sentence.

B Held:(i) For the offence of uttering a false document to be established, it must be proved that; first the document is false in material particulars about itself, that is, it must state what in fact it is not; secondly the person uttering it must know that the document he is uttering or about to utter is false; and thirdly he must utter it fraudulently, that is to say, he must utter it with a clear intention of C making the other person act to his detriment or that of persons or bodies he represents;

(ii) a document is said to be false if it purports to imitate a genuine one, that involves a comparison of two documents - a genuine one and a false one;

D (iii) in the present case the absence or presence of the foregoing stated elements depends on the determination of the following two issues viz. whether the District Medical Officer had any power under the law to declare the alleged quarantine; and, whether any permit was required under the law to stage the ngoma;

E (iv) the Infectious Disease (Infected Areas) Rules made pursuant to section 17 of the Infections Deceases Ordinance, cap. 96 of the Revised laws have the effect of conferring on the Medical Officers the power to declare quarantine over "infected areas";

(v) "infected area" is defined under section 2 of the Infectious Deceases Ordinance cap. 96 as F any area of or place in which there is, or has recently been, an occurrence of infectious disease and which has been declared by the Minister of Health by Order published in the Gazette to be an infected area for the purpose of the Infectious Disease Ordinance;

G (vi) Tunduru was not at the material time, "an infected area" for the purposes of the Infectious Disease Ordinance; therefore the purported quarantine imposed by the District Medical Officer Tunduru was not legally enforceable and its contravention does not disclose any offence known to law;

H (vii) unless it is specifically stated in a quarantine order or where there is a local by-law requiring it, there is no general law which requires a person to get a permit before he stages a ngoma, and no body can be criminally charged for failure to obtain it; therefore there is no falsity in the purported I permit issued by the appellant since in law there is no such thing as permit to stage ngoma;

1984 TLR p204

MSUMI J

(viii) for the reasons stated above there was no utterance at all as defined under section 5 of the A Penal Code and the holder of the said permit could not act upon it to his detriment;

Per Curiam:

The offence of disobedience of lawful order which the seven other accused persons were convicted B of and sentenced can only be maintained where the order was promulgated vide a specific legislation. In this case the alleged quarantine had no backing of the provisions of the Infectious Disease Ordinance hence it could not be a lawful order within the ambit of section 124 of the Penal C Code.

Case Information

Appeal allowed.

Cases referred to: D

1. Alley Ali and Another v Republic [1973]LRT no 43
2. Abdallah Yusufu v Republic [1976] LRT no. 57
3. Laisi Kitia v Republic Cr. App. no. 4 of 1982 (H/C Arusha) (unreported)

[zJDz]Judgment

Msumi, J.: Originally appellant was charged jointly with seven other persons with the offence of E disobedience of lawful order contrary to section 124 of the Penal Code. His co-accused were convicted on their pleas of guilty and each was sentenced to pay a fine of Shs.600/= or four months F jail in default. On the other hand consequent to appellant's plea of not guilty, prosecution decided to withdraw the allegation against him under section 86(a) of the Criminal Procedure Code. But in the same charge appellant alone stood charged with uttering false document contrary to section 342 of the Penal Code. After a full trial he was convicted and sentenced to imprisonment for G 6 months. His appeal against conviction and sentence was ably prosecuted by the learned Advocate, Mr. Kumwembe.

The background which led to this case is connected to the sporadic outbreaks of cholera which are H currently prevalant all over the country. Typical of note of the proceedings recorded by this particular learned trial magistrate, there is sketchy evidence that at the material time there was cholera outbreak in Tunduru District. It is further alleged that among other measures taken to control the decease was the imposition of quarantine by the District Medical Officer. But contrary to I the alleged quarantine, the seven accused

1984 TLR p205

MSUMI J

A persons who were jointly charged with the appellant were on the material day actively engaged in initiatory ngoma locally known as a "mizuka". This conduct gave rise to the count of Disobedience of Lawful Order contrary to section 124 of the Penal Code. The record further reveals that before B staging the said ngoma the second accused, who apparently was the host, obtained from the appellant a written permit purportedly allowing him to stage the ngoma. Appellant issued that permit in his official capacity as a ward secretary of the area where the ngoma was to be held. It was the said act of the appellant of issuing the purported permit which led him to his being charged under C the provision of section 342 of the Penal Code.

A number of legal issues featured in the course of the hearing of this appeal. In this connection I feel obliged to say that the arguments of both counsels were quite salutary and legally enlightening. One of the questions which this court was invited to consider is whether appellant's conduct in law D amounted to the offence of which he was convicted. On this question the judgment of my brother Mfalila Ag. J., as he then was, in Alley Ali and Another V. Republic [1973] LRT n. 43, has been of great assistance. In his characteristic eloquence his Lordship said:

E .... The elements of the offence of uttering of false document are as follows: First the document must be false in material particulars about itself; in other words it must state what in fact it is not. Secondly, the person F uttering it must know that the document he is uttering or about to utter is false. Thirdly he must utter it fraudulently that is to say he must utter it with

the clear intention of making the other person act to his detriment or that of the persons or bodies he represents.

G With respect, I entirely agree with this exposition of the law. In the present case the absence or presence of these elements or any depends on the determination of the following twin issues viz. whether the District Medical Officer had any power under the law to declare the alleged quarantine; H and secondly whether the second accused Hamisi Chidiaonga required any permit, under the law, to stage the ngoma.

Any rational answer to the first question must entail studious perusal of the Infectious Disease Ordinance, cap 96 of the Revised laws. Under section 17 the Director of Medical and Sanitary I Services with the approval of the Minister of Health is empowered to make rules for the purpose, inter alia, of "the prevention of persons entering

or leaving an infected area or travelling along road of access there to and in the vicinity thereof, and A their submission to medical examination and interrogation for the purpose of preventing or checking the spread of infectious disease."

Pursuant to this provision the following rules were published vide Government Notice No. 178 of 1935. For the sake of clarity the same are hereby reproduced in full: B

THE INFECTIOUS DISEASE (INFECTED AREAS) RULES

1. These Rules may be cited as the Infectious Decease (Infected Areas) Rules. C

2. Any person entering or leaving an infected area may be required to stop and submit himself to such inquiries or inspection by a medical officer or any person authorized by him in writing in that behalf as D may be necessary to prevent and check the spread of infectious disease.

3. A Medical Officer or anyone duly authorized by him as aforesaid may establish examination posts on E any road in or leading to an infected area and may refuse to permit any person to pass an examination post unless and until he has submitted to inspection and has satisfactorily answered any questions that may properly be put to him for the purpose of obtaining information to assist in preventing and checking F the spread of infectious disease.

4. A Medical Officer or anyone duly authorized by him as aforesaid may require any vehicle entering or leaving an infected area to stop and may call upon any persons riding there one to quit the vehicle for G the purpose of submitting themselves to interrogation and inspection".

It is respectfully submitted that the practical effect of these rules is to confer on Medical Officers the H power to declare quarantine in their respective areas. It is further submitted that the wide definition of the term "Medical Officer of Health" given under section of the Ordinance includes a District Medical Officer. But such declaration of quarantine can only be made over an "infected area" which is defined under section 2 as: I

A any area of or place in which there is, or has recently been, an occurrence of infectious disease, and which has been declared by the Minister of Health by order published in the Gazette to be an infected area for the purpose of this Ordinance (the emphasis is mine).

B Through my research, which is limited to the scant number of books and statutes available here, I could only trace four such orders published between 1949 and 1965. And none of these Orders C included any portion of this region i.e Mtwara, Lindi and Ruvuma. Thus as far as my research is concerned Tunduru is not an "infected area" for the purpose of the Infectious Disease Ordinance. The purported quarantine imposed by the District Medical Officer Tunduru was therefore not legally enforceable. Its contravention does not disclose any offence known in law. Admittedly the spirit D behind the declaration of the said guarantine was quite noble. I don't pretend to be unaware of mortality caused by such infectious disease as cholera. In the absence of better expression, these diseases are inherently lethal. However, this fact does not overrule the trite legal principle that all E offences are creatures of statutes and where they are not so created, whatever our feeling or wishes might be, it is not within the power of the court to emulate the legislature.

With this finding, the question whether there was any requirement, under the law, to get a permit before one staged a ngoma must get a negative reply. Unless it is specifically stated in a quarantine F order, there is no general law which requires a person to get a permit before he stages a ngoma. I am aware of the general practice prevailing all over the country whereby people seek permission from the respective party branch offices and police stations before they hold any functions which G involves the gathering of people. But except where it is backed by a local by-law, such practices do not have the force of law. Nobody can be criminally charged for failure to observe it.

From the above finding it follows that per se there is no falsity in the purported permit issued by the H appellant. Strictly speaking a document is said to be false if it purports to imitate a genuine one. It invariably involves a comparison of two documents -a genuine one and false one. Thus in this case it is absurd to regard the permit in question as false when in law there is no such a thing as permit to stage a ngoma. The purported permit issued by the appellant is actually what it is. It does not I contain falsity about itself. And for that same reason I am doubtful if there was any utterance at all as

defined under section 5 of the Penal Code. Legally the holder of the said permit could not act upon A it to his detriment. As I said, there was no need for him to get a permit before he staged the ngoma. His possession of the permit in question did not prejudice him.

As noted at the beginning of this judgment, the other seven accused persons were convicted of B Disobedience of Lawful Order contrary to section 124 of the Penal Code. This provision has been a subject for discussion in a number of decisions of this court. The general consensus is that for an order to be lawful it must have been promulgated vide a specific legislation. In Abdallah Yusufu v C Republic [1976] LRT n. 57, Kisanga, J., as he then was, had the following to say

That section 124 of the Penal Code should be restrictively construed so as to include only those orders, D warrants or commands which have the backing of specific legislation. In other words to prove a charge under section 124 it must be shown that the order, warrant or command which is said to have been disobeyed was made pursuant to specific legislation which confers on a public officer or official the power to issue it. E

Similar observation was made by D'Souza Ag. J. in Laisi Kitia v Republic Cr. App. No. 4 of 1982, Arusha Registry (Unreported). As we have already seen, in this case the alleged quarantine had no F backing of the provisions of Infectious Disease Ordinance. Hence the same could not be a lawful order and thus it is outside the ambit of section 124. The convictions of all accused is therefore faulty.

In conclusion this appeal is allowed; conviction is quashed and sentence set aside. Since appellant G has already served the sentence of 6 months imprisonment, I decline to order for his release. And in the exercise of revisional power, I quashed convictions against the remaining seven accused persons and order that each of them should be refunded his Shs.600/= which he had paid as fine. H

Appeal Allowed.

1984 TLR p209

A

[zRPz]MAHERI MARUGU v REPUBLIC 1984 TLR 209 (HC)

Court High Court of Tanzania - Mwanza

Judge Katiti J

August 10, 1984

CRIMINAL CASE 85 OF 1983

Flynote

B Criminal Practice and Procedure - Adjournment - Courts powers to adjourn cases under s.201 of the Criminal Procedure Code Cap. 20 - Discretion must be exercised judicially and not arbitrarily.

Criminal Practice and Procedure - Trial - Trial in absentia - Whether a subordinate court can proceed with C trial in the absence of the accused where after closure of prosecution's case the accused fails to appear at the date fixed for his defence.

-Headnote

D The appellant was charged and convicted in absentia of cattle theft and sentenced to seven years imprisonment. The trial began on 27 April 1982 and on 15 June 1982 the prosecution closed its case but the appellant was not required to make his defence as provided for under s.206 of Cap. 20. The case was adjourned for unspecified reasons and from this point the case underwent several E mentions and adjournments until the appellant lost co-ordination with the court in the consequence of which he failed to appear for his defence and at the judgment

day. The appellant who was out on bail just found himself re-arrested and sent to prison to serve a seven year prison sentence. He appealed.

F Held: (i) While the trial magistrate has discretion under s.201 of the Criminal Procedure Code, Cap. 20 to adjourn cases before and during hearing, the application of this discretion must be done judicially and not arbitrarily;

G (ii) before a subordinate court may proceed under section 202 of the Criminal Procedure Code to dispose the case in accordance with provisions of s.210 of the Code, two co-existing conditions must be satisfied, namely: the accused must have failed to appear on the date fixed for continuation H of hearing after closure of the prosecution's case with notice of such hearing date, and the trial court must also be satisfied that the accused cannot be secured without undue delay or expense.

Case Information

I Order accordingly.

No case referred to.

1984 TLR p210

KATITI J

[zJDz]Judgment

Katiti, J.: Maheri Marugu, who was before Mugumu District Court, charged as 2nd accused, was A finally found guilty and convicted, in absentia, of cattle theft, and sentenced to seven years imprisonment. Arrested, days after he was sentenced, the same Maheri Marugu was escorted straight to prison. Failing to comprehend as to what this was all about, he has appealed bitterly B complaining as to how he could be imprisoned without being accorded opportunity to defend himself, and to hear judgment against him being pronounced, and hence this appeal.

It may not be easy for anyone to appreciate the appellant's bitterness, unless circumstances C pertaining to the trial are recapitulated. This I shall hereafter do. The appellant having been arraigned on 10/12/1981, the prosecution began adducing evidence on 27/4/1982. On the 15/6/1982, the prosecution closed its case, and without the administration of Section 206 of the Criminal Procedure Code, and for reasons unrecorded, the case was adjourned to 10/7/1982 for defence, but D mentioned on 30/6/192, although the appellant had been released on bail, as from 25/3/1982. The record is unambiguous, that, although the appellant was supposed to defend himself on 10/7/1982, the case came up for mention on 30/6/1982, when the case for ungiven reason was again adjourned E for defence to 15/7/1982, and not on 10/7/1982, a date that had hitherto before been fixed for defence. On 15/7/1982 the appellant was not present, but because the prosecutor had no case file, the case was adjourned again to 22/7/1982 for defence.

But again, for reasons that are on record not apparent, the record was never touched till 24/7/1982, F when the appellant mysteriously found himself present, on his own initiative. The record is again silent as to why, but it was again adjourned to 20/9/1982, and subsequently to 7/10/1982 and 25/10/1982 respectively for defence. Unfortunately, when the appellant failed to appear on G 25/10/1982, the case was adjourned to 2/11/1982 for Judgment, which was in fact delivered on 4/11/1982, without the appellant making his defence, and in absentia of the appellant.

The appellant has appealed. In this case, two aspects remarkably activate my reaction. The first H aspect, is the number of adjournments, to whose unexplained monotony, the appellant finally succumbed, and failed to appear. Apart from the thirteen adjournments that preceded the trial, the appellant also suffered further martyrdom at the instance of eight more adjournments. From the record, even where and when the appellant was present, the trial magistrate, did for no recorded I reasons adjourn the case, and this he did many

1984 TLR p211

KATITI J

A times. I would like it inculcated, that while a trial magistrate has discretion to adjourn a case before ordering a hearing of the same - see section 201 of the Criminal Procedure Code Cap. 20, the application of such discretion must be done judicially, and not arbitrarily. In this case the trial B magistrate adjourned the case, so often and so arbitrarily, not bothering to give reasons why, and not caring to be considerate to the appellant, an approach which is very injudicious. After all, an accused person, innocent till proved guilty, like any other citizen, to sustain life, may have his shamba to cultivate, his business to perform, his office to run, and when arbitrary and frequent C adjournments, make the execution or performance of the above impossible, room is coincidentally created for such accused to default in appearance, and the court involved cannot escape blame. It is in my opinion not irrelevant to point out, that such arbitrary and frequent adjournments generate D disenchantment with the Court system on the part of accused, and further provokes boomerang effect to the Courts, by eroding the respect and confidence the public in general and the accused in particular, may have had in the said courts. In this case, while the appellant may have technically defaulted in appearance, the trial magistrate cannot hold himself blameless.

E As aforementioned, the conviction and sentencing of the appellant in absentia demands a Judicial touch by this court. The record speaks and so does loudly, that, the appellant defaulted in appearance after the closure of the prosecution's case. This being undoubtedly the case of course F without prejudice to my reservations expressed above, the provisions of section 202 of the Criminal Procedure Code Cap. 20, are inapplicable, as, though the appellant was absent, the court could not proceed with further hearing, as such further hearing, could in the circumstances of this case only be possible, the prosecution having closed its case, if the appellant was present and G elected to defend himself. I am therefore, without the citation of authority under which the magistrate proceeded, left to presume, that, the magistrate must have applied the provisions of section 202 A of the Criminal Procedure Code Cap 20, to convict and sentence the appellant, H notwithstanding his absence.

I am only naggingly worried by the persistent question, whether, if the trial magistrate had, the provisions of Section 202 A of the Criminal Procedure Code Cap 20 in mind, he properly applied the same. It is perhaps not untimely to delve into how these provisions should apply, and finally see if I they actually were so properly applied. The provisions of section 202 A of the Criminal Procedure Code

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KATITI J

Cap 20, in so far as they are applicable to the circumstances of this case, are in effect saying that, A where an accused person being tried by a subordinate Court, does not appear on a date for continuation of hearing, after the closure of the prosecution's case, the Court may, if it is satisfied that the accused's attendance, cannot be secured without undue delay or expense, proceed to B dispose of the case, in accordance with the provisions of section 210 of the Criminal Procedure Code Cap 20, as if the accused being present, has failed or refused to defend himself. As I see, these provisions introduce an element or point of departure, whereby an accused may in given circumstances be convicted in his absence. That being the case, principles of natural Justice being C in danger, it seems necessary that conditions precedent for the conviction of the accused under section 202 A of the Criminal Procedure Code in his absence must strictly be adhered to. After giving the thorough and deserving consideration to the provisions of section 202 A of the Criminal D Procedure Code Cap 20, it seems to me that two conditions precedent, must be present and co-existing, before a Subordinate trial Court, proceeds under section 202 A of the Criminal Procedure Code in the absence of the accused, to dispose of the case in accordance with the provisions of section 210 of the Criminal Procedure Code Cap 20 - they are in my view as follows: E

(1) The accused must have failed to appear on a date fixed for continuation of hearing after the closure of the prosecution's case; with notice of such hearing date and F

(2) The trial Court must also be satisfied that the accused cannot be secured without undue delay or expense.

Normally, while a trial Court may easily know that, the accused has not appeared on a date fixed for G continuation of hearing, after the closure of the prosecution's case, the same Court has no way of satisfying itself, that the accused's attendance cannot be secured without undue delay or expense, unless the same trial Court takes Judicial steps, from which deduction or conclusion, that, the H accused cannot be secured without undue delay or expense may reasonably be made. Two twin approaches are normally made. One, a warrant of arrest is normally issued, and the impossibility to execute the same, may provide ground for the trial Court to reasonably conclude that the accused may not be secured without undue delay or expense. In addition to the issuing of warrant of arrest I or in the alternative to

1984 TLR p213

A the same, the accused's surety, if any, in the course of showing cause why his cognisance should not be forfeited, may shed light on the where abouts of the accused person, so that the trial court is in a position to make a Judicial conclusion, that the accused cannot be secured without B undue delay or expense. In this regard the trial court must apply a Judicial approach to avoid the danger of lightly condemning the accused unheard a violation of principle of natural Justice.

In this case, the trial magistrate never directed himself on the above two conditions precedent. The C trial magistrate never issued any warrant of arrest, nor was the surety summoned at all. Under such circumstances, it is not easy to tell, that, the trial Court put itself in a position to be satisfied that the accused could not be secured without undue delay or expense. Under the circumstances above shown, and with the prudence that must accompany the application of the

provisions of D section 202 A of the Criminal Procedure Code Cap 20, I find it unsafe to uphold this conviction. The same said conviction is hereby set aside, and it is ordered that the trial Court resume the trial where it had ended to convict him and proceed as provided by Section 206 of the Criminal Procedure Code E Cap 20. The appellant is hereby, to be released from prison, and may, if circumstances so warrant be released on bail, by trial Court, on such terms as it thinks adequate.

F Order accordingly.

1984 TLR p213

G

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v JOACHIM KOMBA 1984 TLR 213 (HC)

Court High Court of Tanzania - Mtwara
Judge Msumi J

October 9, 1985

H CRIMINAL APPEAL 91 OF 1983

Flynote

Criminal Law - Recent possession doctrine - Whether applies to cover all penal offences including murder.

Criminal Law - Recent Possession - whether 8 months is recent enough to justify the application of the I doctrine where the article in question is a radio cassette.

1984 TLR p214

MSUMI J

-Headnote

The respondent was originally charged with burglary contrary to section 294(1) of the Penal Code A and stealing contrary to section 265 of the Penal code. He was found in possession of a radio cassette which had been stolen some eight months earlier together with some household goods from complainant's house which had been burgled. The trial court acquitted the accused on the charge of burglary but convicted him of stealing and subsequently discharged him conditionally under B section 38(1) of the Penal Code. The Republic was dissatisfied with the decision hence the present appeal.

Held: (i) The doctrine of recent possession provides that if a person is found in possession of C recently stolen property and gives no explanation depending on the circumstances of the case, the court may legitimately infer that he is a thief, a breaker or a guilty receiver;

(ii) an inference under the doctrine of recent possession may be drawn to uphold any offence D however penal it may be including the offence of murder;

(iii) there is no general principle for determining the period of time which is recent enough to justify the application of the doctrine of recent possession;

(iv) in the circumstances of this case, eight months after the disappearance of the said stolen E radio cassette is too long for the doctrine of recent possession to be invoked.

(v) when the respondent came into possession of the said radio cassette he knew that it was a stolen property therefore he is found guilty in the alternative receiving stolen property contrary to F section 311(1) of the Penal Code.

Case Information

Appeal allowed.

Cases Referred to:

1. R. v Bakari Abdallah (1949) 16 E.A.C.A. 84 G
2. Bulala Mabubu v.R. Cr. App. no. 360 of 1977 H/C Mwanza.
3. Shabani Juma v R. [1953] 20 E.A.C.A. 199
4. William Maziku v.R. [1970] H.C.D. 174

Kaduri for the Republic H

[zJDz]Judgment

Msumi, J.: In the District Court of Songea respondent was charged with burglary contrary to section 294(1) of the Penal Code and stealing contrary to section 265 of the Penal Code. After full trial he was acquitted on the first count and convicted on the second count. And invoking the provisions I of

1984 TLR p215

MSUMI J

A section 38(1) of the Penal Code, the trial magistrate discharged the respondent on condition that he did not commit any offence of similar nature within the period of eight months. The Republic is dissatisfied with the said acquittal and conditional discharge hence the present appeal.

B Prosecution relied on the doctrine of recent possession in proving its case. From the totality of the testimonies of the five witnesses who compose the prosecution case the following facts have been sufficiently established. First it is evident that the house of the complainant one Willigis Haule C (PW1) was burgled on the night of 29th January, 1982. On that day complainant had locked his house and went out for a short stroll. When he returned he found it broken into and a number of household items, including one radio cassette, missing. The matter was promptly reported to police station.

D Another established fact is that sometimes in or about August 1982, the alleged stolen radio cassette was found in the possession of the respondent. It is on record that respondent first sold the said radio cassette to Longinus Nchimbi (PW2) for shs.2,100/=. However, the sale had to be revoked after respondent had failed to furnish PW2 with the original cash receipt for the radio E cassette in question. The alleged abortive sale transaction was conducted by Mussa Bakari (PW3) on behalf of PW2. Then sometimes at the end of August, 1982 respondent approached Daniel Mbawala (PW4) and offered him the radio cassette in question for shs.2,100/=. But after some bargain, respondent agreed to sell it for shs.1,700/= out of which PW4 paid shs.1,600/= remaining the F balance of shs.100/=. This sale was witnessed by respondent's village mate one Cosmas Nyika (PW5). When respondent was arrested the radio cassette was with the said buyer (PW4).

G When acquitting the respondent of burglary the learned trial district magistrate gave quite a startling argument. He said:

.... Other five public witnesses did not say anything about the accused person for the first count to break the house of the complainant. It is illegal to convict any accused person from (sic) the suspicion evidence like the i H nstant case ....There is no any public witness who saw or witnessed the accused person breaking the house of the complainant on 29.1.82.

I I find it hard to believe that the learned trial magistrate is ignorant of the doctrine of recent possession. It is clear from the evidence that respondent was found in possession of part of the property

stolen from the complainant when his house was burgled. This was about eight months after the A commission of the said offence. Briefly the doctrine provides that if a person is found in possession of property recently stolen and gives no explanation, depending on the circumstances of the case, the court may legitimately infer that he is a thief, a breaker or a guilty receiver. Such inference may B be drawn to uphold any offence however penal it may be. Thus in R. v Bakari s/o Abdallah [1949] 16 EACA 84 it was observed:

that cases often arise which possession by an accused person of property proved to have been very recently C stolen has been held not only to support a presumption of burglary or of breaking and entering but of murder as well, and if all circumstances of a case point to no other reasonable conclusion the presumption can extend to any change however penal. D

Thus it is wrong, as the learned trial magistrate appears to think, because there was no witness who claimed to have seen the respondent breaking into the house of the complainant it necessarily mean that the first count of burglary could not be upheld. There is ample evidence which was quite rightly E believed by learned trial magistrate that respondent was found in possession of the stolen radio cassette about eight months after the commission of the burglary in question. Respondent did not offer any explanation, let alone a reasonable explanation, how he came to possess the same. Instead he just denied to have anything to do with the said radio cassette. It would appear that the learned F trial magistrate was not impressed by this denial hence this explains his convicting him of stealing the radio cassette in question. Now if the learned trial magistrate was convinced, and quite justifiably so, that respondent stole the said radio cassette, and since the said radio cassette was G stolen after the house of the complainant was burgled, it is logically and legally imperative that respondent should be held the burglar of the said house. Respondent could not be held responsible for the theft of the said radio cassette and on the same breath clear him of the burglary which occasioned theft in question. H

Perhaps respondent could have been acquitted of both offences and in substitute convict him of receiving stolen property contrary to section 311(1) of the Penal Code. The question is whether the period of about eight months which elapsed from the commission of the said burglary and stealing I to the time when respondent was found in possession of the radio cassette in question is recent enough

MSUMI J

A to justify an inference that respondent is the actual burglar and thief. There is no general rule in determining this question. My learned brother Katiti, J was audibly clear when he remarked, in Bulale s/o Mabubu v R. Cr. App. No. 360 of 1977, Mwanza. Registry:

B ... But as to what time is near enough to be recent, no acceptable general rule can be given, for the period within which the presumption can operate will vary according to the nature of the properly stolen, for even two months for articles that can easily change hands were not sufficiently recent to raise a strong C presumption against the accused in Shabani s/o Juma v.R. (1953) 20 EACA 199, and yet three weeks were sufficiently recent in the case of possession of stolen radio in the case of William Maziku v R. [1970] HCD 174.

D I am of the opinion that taking into account the nature of the alleged stolen property - a radio cassette - I think eight months are too long for the doctrine to be invoked. It is quite possible that during this period the said radio cassette might have changed hands. Hence the only irresistible E inference is that respondent is a guilty receiver. When he came into possession of the said radio cassette respondent knew that it was a stolen property. He could not have been an innocent receiver. Hence accordingly respondent is acquitted on both counts but in the alternative he is found guilty and convicted of receiving stolen property contrary to section 311(1) of the Penal Code. F Because of this holding I find it not necessary to say anything on propriety of the trial magistrate's order of discharging the respondent conditionally under section 38(1) of the Penal Code. In conclusion this appeal is allowed.

G The trial court's findings are quashed and in substitute accused is found guilty and convicted of receiving stolen property contrary to section 311(1) of the Penal Code.

H Appeal allowed.

1984 TLR p218

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[zRPz]REPUBLIC v NURU MASUDI MGAWE 1984 TLR 218 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Bahati J

CRIMINAL REVISION 5 OF 1984 B

Flynote

Criminal Practice and Procedure - Withdrawal of charge - Prosecution applies to withdraw charge u/s. 86(a) Criminal Procedure Code - Court refuses consent to withdraw instead discharges accused u/s. 201 - Whether proper. C

-Headnote

The respondent was charged with causing death through dangerous driving c/ss. 40(8) and 63(2)(a) of the Road Traffic Act. After the case had dragged for one year and nine months the prosecution applied to withdraw the case under s. 86(a) of the Criminal Procedure Code. The court refused its D consent to withdraw the case instead discharged the accused under section

201 of the Criminal Procedure Code. During the revision proceedings the court considered whether the subordinate court acted within its powers.

Held: (i) Section 201 of the Criminal Procedure Code under which the trial magistrate purported to E dismiss the case and discharge the accused was the wrong section;

(ii) the error in citing the wrong section did not occasion any failure of justice and was curable under s. 346 of the criminal Procedure Code; F

(iii) if there is no evidence led in support of the charge then the presiding magistrate has no alternative but to dismiss the charge and acquit the accused person under section 205 of the Criminal Procedure Code because failure to adduce evidence implies that the accused has no case to answer; G

(iv) the District Court exercised its discretion judiciously to refuse consent to the prosecution's application to withdraw the case;

(v) where the court refuses to adjourn a case under s.201 of the Criminal Procedure Code then s. 205 automatically applies. H

Case Information

Order accordingly

Cases referred to:

1. R. v Kanji Kotecha [1976] LRT n.41 I
2. R. v Cleophas Katiti [1977] LRT n. 19

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BAHATI J

A 3. DPP v Mienda [1978] LRT n. 64

4. R. v Murinda and others [1971] H.C.D. n. 445

Nzali and Rutashobya for the Republic

B Kapinga for the Respondent

[zJDz]Judgment

Bahati, J.: This is a revision case. After one Jumanne Maneno Hangai had written to the court complaining about the district court's order of discharging Nuru Masudi Mgawe the respondent in this revision proceeding, this court called for the District Court's case file for the purpose of C revision. The Director of Public Prosecutions was served with a notice of hearing of this revision.

Mrs. Nzali learned State Attorney appeared on behalf of the Director of Public Prosecutions and Masudi Mgawe the respondent who was the accused person in the District Court case was served D as well and he appeared in person.

Mrs. Nzali submitted that the case at hand originated from Kivukoni District Court where the respondent was charged with causing death through dangerous driving contrary to section 40(1) E and 63(2) (a) of the Road Traffic Act. The case came to court on 15th November, 1981 for the first time. Then it was adjourned on a number of occasions either due to absence of the accused or because there was no Police Case file or because there were no witnesses. The case was never heard until on 12th August, 1983. The Prosecution applied to withdraw the charge under section F 86(a) of the Criminal Procedure Code. But the trial Magistrate refused the

prosecution's consent to withdraw u/s 86(a). The learned trial Magistrate argued that the case had been adjourned many times for lack of the Police case file and that the accused would not be free if discharged u/s 86(a) of G the Criminal Procedure Code because he would be waiting for a trial if the Police file was found. The learned Magistrate discharged the accused u/s 201 of the Criminal Procedure Code. Mrs. Nzali went on to submit that section 201 did not empower the Magistrate to discharge an accused person. The section only gives power to a subordinate court to grant or refuse adjournment. In this case the Prosecution was not applying for adjournment but for withdrawal. She cited R. v Kanji Kotecha [1976] LRT n.41 which held that section 201 of the Criminal Procedure Code gives a discretion to a H subordinate court to grant or refuse adjournment. Once an adjournment is refused then evidence I must be led in support of the case. Failure to do so gives the trial court power to dismiss the charge and acquit the accused under

section 205 of the Criminal Procedure Code. She went on to submit that unless a case is withdrawn A by the Prosecution the trial court has no power to dismiss the case for lack of prosecution. She cited R. v Cleophas Kateti [1977] LRT 19 where Lugakingira, Judge held that unless withdrawn by Prosecution a court has no power to dismiss a case for want of prosecution. She submitted further B that the accused had a hand to play in the delay of this case and she prayed that the case be withdrawn u/s 86(a) of the criminal Procedure Code as originally applied for.

The respondent sought for an adjournment to engage an advocate and on the resumed hearing of the case Mr. Kapinga learned counsel for the respondent submitted that the respondent was C brought to court on 15th November, 1981 and he was set free by the court on 12th August, 1983 - a year and 9 months later. Investigations were completed by 15th December, 1981 and on 15th December, 1981 a hearing date was fixed. Yet the record does not show any application for witness D summonses by the Prosecution for the entire period of one year and 9 months. The reason advanced by the Prosecution for failure to proceed with the hearing was that they could not trace their Police file. Even the relatives of the deceased who moved the court to revise this case did not E do so until 2 years and 6 months had passed since the respondent was first charged. Mr. Kapinga went on to submit further that the case had a sad picture of inefficiency and lack of interest on the part of the Prosecution. The Public Prosecutor applied to withdraw the case u/s 86(a) for failure to trace the Police file. The respondent was set free under section 201 of the Criminal Procedure Code. F The Prosecution requires consent of the court in order to withdraw from prosecution of any person. In this case consent was denied and also adjournment was refused by necessary implication The Republic failed to adduce any evidence at all to prove the charge, and the only G alternative left to the Magistrate was to set free the respondent and acquit him u/s 205 of the Criminal Procedure Code. Mr. Kapinga referred to Kanji Kotecha's case cited by the learned State Attorney above. Mr. Kapinga argued that the trial court had no alternative but to acquit the respondent. Alternatively, by acquitting the respondent the trial court exercised its discretion H judicially and that there was no failure of

justice. The court considered the gravity of the offence in its ruling and it also considered how the relatives of the deceased would feel if respondent were set free without trial. The Magistrate blamed the Prosecution for failure to proceed with the case. The I Magistrate considered also the respondent in this

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BAHATI J

A case, how he would suffer psychologically if the charge was left still hanging on his neck. In the interest of justice he acquitted the respondent. Mr. Kapinga submitted further that the trial Magistrate had inherent power to do so. He cited DPP v Mienda [1978] LRT n.64 where it was B stated that justice should not be defeated on account of the inefficiency of Police, Prosecutor or the court. Mr. Kapinga submitted also that there was nothing to show by way of affidavit that the Police file or anything else of the Prosecution which delayed the prosecution of this case has been found. It would be unjust for the respondent to go back to the District Court for an indefinite period. C It was in the interest of justice that cases ended as soon as possible. Mr. Kapinga conceded that section 201 of the Criminal Procedure Code as applied by the trial Magistrate was wrong. But, he submitted, this error was curable under section 346 of the Criminal Procedure Code. The only D question was whether the order of the Magistrate had occasioned any failure of justice. He submitted that justice had been done here and he urged the court to equally do justice.

In a brief reply, Mr. Rutashobya learned State Attorney submitted that Kanji Kotecha's case cited by Mrs. Nzali and Mr. Kapinga was not relevant in this case because it related to an acquittal under E section 205 of the Criminal Procedure Code. In this case the trial Magistrate applied section 201 to acquit. Mr. Rutashobya went on to submit that section 86(a) of the Criminal Procedure Code was not meant to be used with a view of giving the accused the right not to be harassed again. The F Public Prosecutor was not asking for an adjournment but to withdraw under section 86(a) and instead of considering the application the trial Magistrate imported irrelevant considerations in the case and then he made the error of exercising the powers under section 205 of the criminal Procedure G Code and purported to use them under section 201 of the Criminal Procedure Code. He pointed out that the fact that he was appearing in this revision case clearly showed that the Republic was interested in the matter and that it would be a very bad precedent if what the trial court did was to be endorsed by this court, for if trial courts could do as what was done in this case it would make it H impossible for the prosecution to use section 86(a) of the Criminal Procedure Code.

After careful perusal of the district court case file and after hearing the parties in this revision, I am satisfied that the Prosecution was to blame for the delay in the finalization of this case. There was I certainly inordinate delay in finalising the case. The question which comes to mind is whether the district court had power to dismiss the

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BAHATI J

charge and acquit the respondent under any section of the Criminal Procedure Code. I should, A perhaps , state here that section 201 of the Criminal Procedure Code under which the learned

trial Magistrate purported to dismiss the case and discharge the respondent is the wrong section. It is even conceded by the counsel for the respondent that this section is for the discretion of the court B to adjourn a case which had come for hearing. It has nothing to do with the dismissal of a case and discharge of an accused person. Sections which deal with dismissal of the charge and acquittal of accused or simply acquittal of accused are sections 198, 202 and 205 of the Criminal Procedure Code. Section 198 refers to a situation where the complainant does not appear at the hearing. It C empowers the court to dismiss the charge and acquit the accused person. Section 200 applies when the complainant is permitted by the court to withdraw his complaint. It empowers the court to acquit the accused after allowing the withdrawal of the complaint. Section 202 applies where the D complainant does not appear at an adjourned hearing of a case. It empowers the court to dismiss the charge and acquit the accused. And section 205 applies where there is no case to answer. It empowers the court to dismiss the charge and acquit the accused person. E

In the present case there was an application by the Public Prosecutor to withdraw from the prosecution of the accused u/s 86(a) of the Criminal Procedure Code because the Police case file could not be traced. The learned Magistrate declined to give consent to such withdrawal and instead he apparently dismissed the case under section 201 of the Criminal Procedure Code, and F discharged the accused person.

It has been urged on this court by Mr. Kapinga for the respondent that the relevant section here was Section 205 of the Criminal Procedure Code and that it was wrong for the trial Magistrate to apply G section 201 of the Criminal Procedure Code because it did not occasion any failure of justice. Mr. Rutashobya, learned State Attorney said that section 205 was not relevant here. With due respect to both counsels, I agree with Mr. Kapinga that the error in citing the wrong section did not occasion any failure of justice and the error is therefore curable under section 346 of the criminal H Procedure Code. I also agree that the learned trial Magistrate acted under section 205 of the criminal Procedure Code after he refused the court's consent to withdraw from prosecution of the accused on the part of the public prosecutor and did not adjourn the case. The case of R. v Kanji Kotecha I was cited to the court. The question

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BAHATI J

A is whether Kanji Kotecha's case was rightly decided in view of subsequent decisions to the contrary such as R. v Cleophas Kateti and DPP v Mienda cited by learned counsels. In Kanji Kotecha's case it was held that once an application for adjournment by the prosecutor has been B refused, evidence must be led in support of the charge; failure to do so gives the presiding magistrate no alternative but to dismiss the charge and acquit the accused under section 205 of the Criminal Procedure Code. Maganga, Ag. J., as he then was, argued that the legislature could not have given the court power to refuse to grant an adjournment and then failed to provide for the C consequences of such refusal. He argued further that failure to adduce evidence implied that the accused had no case to answer and as such the case would come under the ambit of section 205. Barely a year later Lugakingira, Ag. J., as he then was held in Rep. v. Cleophace Kateti, cited above, D that unless withdrawn by the prosecution a court has no power to

dismiss a case for want of prosecution. This holding was in respect of a situation where the complainant is present but unable to offer evidence against the accused and not where the complainant or public prosecutor was absent, Lugakingira, Ag. J., cited the case of R. v. Murinda and others [1971] HCD n.445 where a trial E Magistrate dismissed the charge and acquitted the accused after he had fixed a final date for hearing but the prosecution were not ready to proceed. On revision it was held that a case cannot be dismissed for want of prosecution.

F An even more recent case was decided by Biron J. in D.P.P. v Mienda also cited by learned counsel for the respondent. In this case of Mienda, Baron J. said this:

As I have often reiterated, the subordinate court is the creation of statute and it has no power other than those G conferred upon it by statute. In fine, a subordinate court has no right to dismiss a charge and acquit an accused, where the prosecution is represented and does not agree to such dismissal of the charge or acquittal of an accused.

H In D.P.P. v Mlienda, the trial court had dismissed the case and acquitted the accused because the prosecution failed to adduce evidence because of lack of Police file. The case was dismissed u/s 200 of the Criminal Procedure Code. In R. v Cleophase Kateti, the trial court dismissed the case u/s 198 I and acquitted the accused after refusing further adjournment and after the prosecution had failed to offer more evidence. And in R. v Kanji Kotecha the trial court

acquitted the accused person because the trial court refused further adjournment and no more A evidence was adduced by the prosecution.

I have searched for a decision of the Court of Appeal on this question of whether a subordinate court has powers to dismiss a case for failure to offer evidence but I was unable to find any. I am B therefore left with the three decisions cited above two of which are at variance with the first decision namely that in Kanji Kotecha's case. My own interpretation of section 201 of the Criminal Procedure Code is as contained in the decision of Kanji Kotecha's case. I fully agree with my C brother Maganga that under section 201 of the Criminal Procedure Code the trial court has a discretion to adjourn a case or not when it comes up for hearing. I also agree with my brother Maganga's reasoning that the legislature could not have given the court power to refuse an adjournment and then failed to provide for the consequences of such refusal. This argument can be amplified by reference to sections 198 and 202 of the Criminal Procedure Code Section 98 provides D this, inter alia:

.... if the complainant, having notice of the time and place appointed for the hearing of the charge, does not appear, the court shall dismiss the charge and acquit the accused person, unless for some reason it shall think E it proper to adjourn the hearing of the case until some other date, ...

Section 202(1) provides, inter alia, thus: F

... and if the complainant shall not appear the court may dismiss the charge and acquit the accused ...

Section 202 refers to a situation where the hearing or further hearing may be adjourned. Section 198 G refers to a situation where a hearing date is set and the accused appears but the

complainant does not appear. Both sections are substantially the same. The result of non-appearance of the complainant and the failure of the complainant to adduce evidence is the same namely that no evidence is adduced. Indeed, the purpose of the appearance of the complainant at the time of H hearing is so that evidence may be led in proof of the charge. Now, if no evidence is led due to non-appearance of the complainant or failure or inability by the complainant to adduce evidence although the complainant is present and in each case the court does not think it proper to adjourn I the hearing of the case until some other date, why should the results being different whereby

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BAHATI J

A refusal to adjourn under sections 198 and 202 leads to acquittal of the accused and dismissal of the charge whereas refusal to adjourn under section 201 leads to nothing, i.e., to no refusal to adjourn.

Bearing in mind what I have said above I am in complete agreement with the decision in Kanji Kotecha's case that where the court refuses to adjourn a case under section 201 of the Criminal B Procedure Code then section 205 applies and the case automatically falls under the ambit of section 205. If there is no evidence led in support of the holding charge then the presiding magistrate has no alternative but to dismiss the charge and acquit the accused person under section 205; for failure C to adduce evidence implies that the accused has no case to answer.

For the above reasons, I must differ from the holdings in the cases of R. v Cleophas Kateti and D.P.P. v Mlienda cited above. With due respect to the learned judges who dealt with the above D cited cases, I am unable to agree that the court is unable to do anything about a case which is not withdrawn by the Prosecution under section 86(a) or 86(b) of the Criminal Procedure Code or which does not fall under sections 198, 200, 202 or 81 of the criminal Procedure Code even if the court has E refused to adjourn a case or to withdraw a case at the request of the prosecution.

I therefore answer the first question I asked in the affirmative that the district court had power to dismiss the charge and acquit the respondent under section 205 of the Criminal Procedure Code. I also answer the 2nd question whether Kanji Kotecha's case was rightly decided in the affirmative. F As to whether it was just in the circumstances of this case for the district court to act as it did I have no doubt in my mind that the district court exercised its discretion to refuse further adjournment judiciously. I need not repeat what has been said by learned counsel for the G respondent about the inordinate delay in prosecuting this case. I can see no justification for the prosecution to withdraw the charge against the respondent under section 86(a) and then start the prosecution of the respondent all over again after the prosecution had completed investigations right on the first day the respondent appeared in court and after it had taken the prosecution a year H and 9 months to decide to withdraw the case. I am satisfied that the learned trial Magistrate considered all relevant factors and came to the right conclusion. There is a law in our statute books requiring the completion of cases in the district court within 60 days. It would be circumventing I such a law if the prosecution were allowed to withdraw cases and then file the same cases again. This could lead to persecution and not just prosecution,

for, if the argument of the Republic is taken to be correct then it means theoretically the prosecution A can withdraw a case under section 86(a) and later on file the same case again in court under a different number and then withdraw it and file it again and so on and so forth ad infinitum. What is to prevent the prosecution from the abuse of court process if all the court may do when an B application to withdraw a case under section 86(a) is presented, is to either grant the application or refuse the application and adjourn the case to another date?
For the above reasons the application to revise the proceeding in this case is granted to the extent C that the respondent is acquitted under section 205 of the Criminal Procedure Code and the charge is dismissed. The order of the learned Magistrate dismissing the charge under section 201 of the Criminal Procedure Code and discharging the accused person is set aside. In its stead it is substituted the order of dismissing the charge under section 205 of the Criminal Procedure Code and D acquitting the accused person. Therefore the accused person is acquitted and the charge is dismissed under section 205 of the Criminal Procedure Code.
Order accordingly E

F
[zRPz]REPUBLIC v HASANI SAIDI 1984 TLR 226 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mapigano J

November 15, 1985
CRIMINAL REVISION 1 OF 1984 G
Flynote
Criminal Practice and Procedure - Charges - Essential element of offence left out - Defective - When defect may vitiate proceedings. H
Evidence - Corroboration - Failure of magistrate to warn himself of the danger to convict without corroborative evidence - When fatal to proceedings.
-Headnote
The accused was charged with and convicted of the offence of rape. He was sentenced to three years' imprisonment. The case file was sent to the high court for confirmation of sentence. The learned judge who examined the record of the proceedings was of the opinion that the charge was I defective because the particulars of the offence

MAPIGANO J
A did not allege that there was no consent on the part of the woman or that her consent was obtained by force or by means of threats or intimidation or by fear of bodily harm. He was also under the impression that the evidence adduced by the prosecution stood uncorroborated.

B Held: (i) Where a substantial miscarriage of justice has not flown from the defect, the provisions of s. 346 of the Criminal Procedure Code can be brought into play and the conviction be sustained;

C (ii) in this case the accused understood the substance of the case he was meeting as such the defect did not lead to a substantial miscarriage of justice and thus curable under sS. 346 of the Criminal Procedure Code;

(iii) it was not necessary for the trial magistrate to warn himself of the danger of convicting D without corroborative evidence because there was sufficient corroborative evidence.

Case Information

Order accordingly.

E No case referred to.

L. Mapalala for the Republic.

[zJDz]Judgment

Mapigano, J.: It seems that the learned judge who examined the record of these proceedings was of F the opinion that the charge was defective and under the impression that the evidence adduced by the prosecution stood uncorroborated.

With regard to the charge the learned judge was absolutely right and it is only proper that Miss Mapalala counsel for the Republic has readily conceded the point. The accused Hasani Saidi was G brought to the District Court at Kilosa charged with the offence of rape c/ss. 130 and 131 of the Penal Code. The particulars of the offence as set out in the charge sheet averred that "Hasani Saidi charged on the 17th day of June, 1983, at about 16.00 hrs. at Miyombo village, Kilosa district, H Morogoro Region, did have carnal knowledge of one Hagali w/o William". Quite obviously, the charge omitted an essential ingredient of the offence of rape, namely the allegation that there was no consent on the part of the woman, or that her consent was obtained by force or by means of threats or intimidation or by fear of bodily harm. This flaw escaped the attention of the learned district I magistrate and I may charitably attribute his oversight to his failure to pause sufficiently to peruse the particulars.

1984 TLR p228

MAPIGANO J

It is elementary that every criminal charge should set out all essential constituents of the offence A alleged. However, it does not necessarily follow that every defect in the charge will vitiate the proceedings or the judgment. In a proper case, that is, where a substantial miscarriage of justice has not flown from the defect, the provision of section 346 of the Criminal Procedure Code can be B brought into play and the conviction be sustained. This, in my opinion and in agreement with counsel for the Republic, is exactly such a case. The accused understood the substance of the case he was meeting, especially after the complainant Hagali had given her testimony. What's more, it was not his line of defence that Hagali had consented to the intercourse. Should I, therefore, find C that the evidence against him was credible and sufficient to support the conviction I would apply the provision of section 346 above and refrain from disturbing the conviction.

Hagali was a married woman and she lived in Miyombo village. Her evidence shows that at about 4 D p.m. on 17/6/83 she was alone at her shamba guarding it against the incursion of wild pests. The accused, a fellow-villager and an acquaintance, called at the shamba and swiftly caught her and his strong hand went over her mouth to stifle or prevent an outcry. Then he shoved her down, took off E his trousers and in another instant penetrated her and ejaculated inside her. It was easier: she was not wearing any underpants. Her sister in-law appeared at the scene but by then the accused had already indulged his passion and was fleeing. Hagali picked herself up and promptly went to her F balozi to lodge a complaint against him, and thence to the police who had her medically examined on the morrow.

Akiza Yohana (PW2), the said sister in-law, told the court that she saw the accused running off from the scene holding his trousers. Saidi Mfaume (PW3) the balozi confirmed that the complainant G approached him and made a report that she had just been ravished by the accused. He observed bruises on her lips and back. And a medical report also showed that she had sustained a bruise around her upper lip adjacent to the nose.

The accused flatly denied any involvement in the offence. He denied meeting the complainant on H that day and he did not know why she came to frame him. No, he said, there was no bad blood between them. No, he added, she was not mentally unsound.

The learned magistrate believed the prosecution evidence and held that the charge was clinched. He convicted the accused of the I

1984 TLR p229

MAPIGANO J

A offence and handed down a sentence of imprisonment for three years subject to confirmation by this court.

I turn to the question of corroboration. In any sexual offence, if the person against whom the offence is alleged to have been committed is an adult, the court should warn itself that it is not safe B to convict on the uncorroborated testimony of the complainant but that if it is satisfied of the truth of the complainant's evidence it may nevertheless convict. This, as Miss Mapalala pointed out, is a rule of practice and not a rule of law. Evidence in corroboration need not be direct. It is sufficient if C it is circumstantial evidence connecting the accused with the offence, otherwise many such crimes could not be brought to justice. And depending upon the case, evidence in corroboration can consist of one single piece of evidence or several pieces viewed as a whole.

D The conventional wisdom about that rule came from the 17th century English jurist Sir Mathew Hale, who wrote that "rape is an accusation easily to be made and hard to be proved, and harder to be defended by the party accused, the never so innocent". The rationale is the difficulty of disproving a false accusation and the possible damage to a man's reputation, especially if his E community is small and orthodox - belief oriented. And that for a multitude of reasons women may accuse men of sexual assaults to extort money, force marriage, satisfy a childish desire for notoriety, attain personal revenge or obviate a sense of shame after consenting to unseemly intercourse. F Fearful of false charges and in this century much under the sway of

Freudian notions about female fantasies, the Western law constructed protections around a rape accused that were, it is said, the envy of murder accused.

There has been a change in attitude in some countries. In some Western jurisdictions the law no longer believes that words of a woman are not to be trusted and when a woman proclaims herself a G victim of rape her testimony receives the same respect as that accorded any man. However, some bizarre cases have unfortunately, given a kind of shudder to that viewpoint. The example par excellence is Detson's. A woman called Cathleen Webb happened to declare this year that she had H lied in 1979 when she accused Detson of raping her. Her testimony and the evidence found on her body and her clothes had the poor man sent to prison for 25 to 50 years! That is perhaps by the way. Our law here still faithfully observes Hale's admonition.

I The trial magistrate did not stop to warn himself of the danger to convict without corroborative evidence. In my view, it was not

necessary for him to do so. There was sufficient corroborative evidence. There was the evidence of A Akiza who saw the accused running off from the scene holding his trousers. There was the evidence of the balozi that the complainant showed up sustaining a bruise on her back and lips, which was consistent with her mouth having been gripped as she had recounted, and which also B was a manifestation of a forced sexual intercourse. I am in respectful agreement with the view expressed by the Republic that the evidence led against the accused was sufficiently positive and tangible to found the conviction. I therefore leave the conviction to stand.

Rape is an enormous crime, no doubt. In Tanzania it is punishable by imprisonment for life with or C without corporal penalty. That demonstrates the intensity of the feeling of disgust with which the legislature views it. Incidentally other jurisdictions, olden and modern, express more intense opprobrium. To a great measure that is due to the stigma that is attached to the victim, if unfairly, D the humiliation and trauma that the victim invariably experiences the violation of her freedom of sexual choice and the threat which it poses to the security and morality of society. Ancient Babylonian law considered it a theft of virginity and its servants meted out hefty penalties. E According to the Code of Hammurabi a rapist was to be seized and slain. As to the Biblical Hebrews, both victim and villain shared the same fate of death by stoning. The first book of the Bible, Genesis, narrates the raping incident of Jacob's daughter Dinah and the violent retaliatory action taken by Jacob's sons on the rapist and his tribe. In Britain and USA convicted rapists F receive long prison sentences. A sentence of three years for rape cannot, in my view, be regarded as excessive or as wrong in principle. This was not a story of a young man and a woman going out for a dance, being fond of each other, and things getting out of hand. It was a deliberate planned and violent sexual attack. Indeed, it might be that the magistrate erred on the score of leniency. The G sentence is duly confirmed.

Order accordingly. H

A

[zRPz]CHANDRAKANT VINUBHAI PATEL v FRANK LIONEL MAREALLE AND ANOTHER 1984 TLR 231 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mustafa JJA, Makame JJA and Kisanga JJA

July 17, 1984
B CIVIL APPEAL 5 OF 1984
Flynote
Land Law - Disposition of an interest in land - Requisite consent not obtained - Agreement void and unenforceable.
C Contract - Delay in payment of instalment - Transaction completed and property in shares had passed - Whether rescission of agreement possible.
Company Law - Shares - Transfer of shares - Act of handing over share certificates duly endorsed in blank D and signing share transfer forms in blank - Whether property in the shares has passed.
-Headnote
The appellant Chandrakant Patel is the legal representative of Vinubhai Patel. The latter entered into an agreement to purchase business and premises of New Sea View Hotel Ltd. (a private limited E liability company) with furniture and fixtures for shs.600,000/= from the respondents. The agreement for the disposition of interest in the said premises did not get consent of the Director of Land Development Services. After the appellant had paid a substantial part of the price and the vendor F had handed over the share certificates endorsed in blank and share transfer forms also signed in blank the respondents sought to rescind the agreement and repossess the hotel.
The high court found that the agreement was not void ab initio despite want of requisite consent from the Director of Land Development Services. He moreover found, inter alia, that the appellant G was fraudulent. He decided in favour of the respondents, ordered repossession of the hotel and awarded damages to the respondents.
On appeal it was argued that the agreement for the disposition of the suit premises was void H because of, among others, want of requisite consent. But, even though, there was other evidence to prove that there was an agreement of sale of the hotel business, that property in the shares of the company passed to the purchaser and, therefore, that the respondent could not rescind it.
I Held: (i) The agreement for the disposition of an interest in land was void for want of consent from the Director of Land Development Services;
1984 TLR p232
MUSTAFA JA
(ii) the delay in paying the instalments could not entitle the respondents to rescind the A transaction once it was completed and the property in the shares had passed;

(iii) the act of handing over the share certificates duly endorsed in blank and the signing of the B share transfer forms in blank constituted prima facie evidence of an unequivocal act of transfer and constituted the deliveree as owner as against the deliveror.

Case Information

Appeal allowed. C

No case referred to.

M. Raithatha, for the appellant

M.A. Lakha, for the respondents D

[zJDz]Judgment

Mustafa, J.A. read the following judgment of the court: On 9th June, 1978, the respondents Frank Marealle and Kisinane Njau Tarimo (now represented by his personal legal representative Emmanuel Tarimo) had filed a case against Fatehali Janmohamed. By their amended plaint dated July l6 1978 E they apparently sued on an agreement dated 6th June, 1977, (hereafter called the agreement) in respect of the sale of the business of New Sea View Hotel Ltd., (a private limited liability company) with furniture and fittings for an inclusive sum of Shs.600,000/= to Janmohmaed. The New Sea View Hotel (hereafter called the hotel) had issued 1,000 fully paid up shares of shs.100/= each, 750 of which were in the name of Frank Marealle and 250 in the name of Tarimo. These two were the only share holders of the hotel. The agreement inter alia provided for the payment of the purchase price G as follows: Shs.350,000/= to be paid at once and the balance by monthly instalments of shs. 25,000/= each. At the date of the filing of the suit, only four instalments had been paid, and another sum of shs. 100,000/= had allegedly been paid to the Income Tax authorities for liabilities incurred prior to the date of sale, leaving a sum of shs. 50,000/= still due and owing. Frank Marealle had H alleged that he had, on 10th March, 1978, demanded re-possession of the hotel and that the defendant Janmohamed had failed to comply. Marealle and his co-plaintiff Tarimo had asked for an order for them to re-possess the hotel, and for damages for loss of income at the rate of shs. 25,000/= I per month.

1984 TLR p233

MUSTAFA JA

A Janmohamed in his amended statement of defence alleged inter alia that he had on 10th December, 1977, irrevocably assigned all his rights and liabilities of the transaction to a third party, who would be responsible for instalment arrears, if any.

B The third party, Vinubhai Patel (now represented by his personal legal representative Chandrakant Patel) took out third party proceedings and was joined as a third party in the suit.

In his amended statement of defence the third party (hereafter called Patel) alleged inter alia that both the plaintiffs had transferred all their respective shares to him and his son and that subject to C the discharge of tax and other liabilities on the part of the plaintiffs, he will pay any balance found due. He denied the right of the plaintiffs to repossess or to damages.

Unfortunately, this case had from the start proceeded on a totally wrong footing. The agreement D was allegedly drafted by a practising advocate. It was a very unusual document. The case and trial would seem to have been based, in one form or another, on the said agreement, and indeed the trial judge decided the case on the basis that it was a valid and enforceable agreement. He

found that Marealle's consent to the agreement was obtained by fraud or that certain words subsequently E added to the agreement were added in fraud and the agreement was therefore voidable in terms of the provisions of section 19(1) of the Law of Contract Ordinance, 1961, or alternatively that the defendant Janmohamed had committed a breach of the agreement by assigning it to Patel before F completion of payment of the purchase price. On these grounds the trial judge found for the plaintiffs and ordered possession and damages in their favour.

G The agreement reads in part as follows:

THIS AGREEMENT made this day ....of JUNE One thousand nine hundred and seventy seven (1977) BETWEEN THE SEA VIEW HOTEL (1976) LIMITED, a Limited liability Company incorporated in Tanzania H and having its registered office at Dar es Salaam of Post Office Box No. 542, Dar es Salaam (hereinafter called the vendor) of the one part and FATEHALI RAJABALI JANMOHAMED of P.O. Box 2202 Dar es Salaam I (hereinafter called the purchaser) of the other part. or his nominees: VINUBHAI B. PATEL.

1984 TLR p234

MUSTAFA JA

WHEREAS: the Vendor is the owner of the undivided share in the right of occupancy comprised in the A Certificate of Title No. .... of on and over plot No. ...Ocean Road, Dar es Salaam in the City of Dar es Salaam (hereinafter called the premises).

NOW THIS AGREEMENT WITNESSETH as follows: B

1. The Vendor has agreed to sell to the purchaser and the Purchaser has agreed to buy the aforesaid hotel situated on the aforesaid premises with furniture and fixtures fittings all inclusive for a sum of shs. 600,000/= free from all encumbrances. C

2. ...

3. ...

5. The Vendor shall execute and do all such acts, things and instruments as may be necessary or D convenience to transfer the right title and interest in the said premises to the purchaser.

It will be seen at once that it was an agreement for the disposition of an interest in land which needed consent from the Director of Land Development Services. There was no consent. It is not in E dispute that the Right of Occupancy was in the name of one Bharwani, not in the hotel. Again there was apparently no company seal affixed to the document. That agreement cannot be looked at and cannot form the basis of the suit nor of the judgment. Indeed in their amended plaint, the F plaintiffs in paragraph 9 contended that the agreement was void in law for lack of consent. Presumably they were relying on that ground for the right to recover possession. And in his amended statement of defence Janmohamed in para 2 also averred that the agreement was void in G law for lack of consent. The trial judge, though he framed issue No. 3 in the following terms "is the agreement void in law?", made no finding directly on it. He roamed over arguments concerning whether it was void or not, but did not refer to the lack of consent factor, and the nearest he could be said to have come to a conclusion was in these words in his judgment: H

My view is that taking into account what took place after the signing of the contract between the first plaintiff and the defendant - for example the payment of shs. 350,000/= by the defendant towards the purchase of the I hotel and the subsequent

1984 TLR p235

MUSTAFA JA

A payments of the monthly instalments it would be wrong for the court to say that the contract between the first plaintiff and the defendant was void ab initio.

B It would seem from these words that the judge found that the agreement was valid and enforceable. The payment of the initial purchase price and the instalments could by themselves have been evidence of a contract not necessarily written without reference to the agreement, and we fail to see how those acts could have validated an agreement that was declared by law to be C unenforceable and void. On appeal before us Mr. Lakha for the respondents submitted that the agreement is void, and Mr. Raithatha, for the appellant, agreed. Indeed in Mr. Lakha's notice of grounds for affirming the judge's decision, paragraph 2 reads:

D The learned High Court judge ought to have held that the agreement Exhibit P1 is void in law by reason of not having been properly executed by the company or the second defendant and also for lack of consent requisite in a disposition of an interest in land.

E We are of the view that the agreement is void and since the trial judge has based his decision entirely on a void agreement, his judgment is vitiated as it is based on a fundamental flaw. We will F have to set it aside, unless the judge's decision can be affirmed on other grounds.

Before we proceed any further, we think we will have to consider the evidence tendered in court by Marealle, Tarimo and Janmohamed, Patel died before he could testify. At the trial it transpired that the central issue was whether, when, Marealle handed over possession of the hotel business to G Janmohamed on 6th June, 1977, he did so knowing that Patel in fact was the real purchaser or was interested in purchasing it.

H Janmohamed in evidence testified at one stage as follows:

When I had completed negotiations with Mr. Marealle about the purchase price then Mr. Marealle came to know at Mr. Akena's office that the real purchaser is Mr. V.P. Patel. I told Mr. Marealle that Mr. Patel was I interested. This was in Mr. Akena's office. ... Mr. Marealle did not object when I told him that Mr. V.P. Patel was the real buyer of the hotel.

1984 TLR p236

MUSTAFA JA

Another stage in cross-examination he said inter alia: A

... Marealle had hinted that if he got a good buyer he would sell the hotel. It was on this hint that I told Mr. Patel regarding buying the hotel. I did not reveal to Mr. Marealle that Mr. Patel wanted to buy the hotel. B

... I did not tell him who was buying it. He did not ask me who was buying it. ... Mr. Patel could probably not get the hotel at the price if he had negotiated ... I admitted the contents of P4 that is why I did not reply. ...

In P4, Marealle had written to Janmohamed: C

Furthermore I sold the business specifically to yourself for reasons best known to you. D

Janmohamed had contradicted himself on a vital issue then before the court, and his testimony cannot be believed in any material particular.
Similarly, Marealle in evidence was questioned on a letter dated 5th December, 1977, (Exhibit P7) E written by the managing director of the hotel to him, and which enclosed a cheque for shs. 25,000/= being the 4th instalment payment. In the course of the trial, this letter assumed great importance.
On this matter Marealle said in evidence: F

... Yes, I have received this letter. I do not remember receiving this letter from Sea View Hotel. Yes, it appears I have received it. ... I do not remember receiving a cheque nor the letter dated 5th December, 1977. I do not have the letter. ... G

It was established in evidence, and so admitted by Mr. Marealle, that he had handed over the share certificate in the name of Kisinane Tarimo to Janmohanmed on 6th June, 1977. It was a share certificate for 250 shares. Mr. Marealle had signed in blank the reverse of the share certificate, H obviously with the object of endorsing the shares over to whoever the purchaser was. His possession of Tarimo's share certificate and his handing it over to Janmohamed in the sale transaction, and his endorsement in blank on its reverse, established beyond doubt that he was acting, or holding out as acting, as Tarimo's agent. Yet in his testimony on Tarimo's shares, he I stated inter alia:
1984 TLR p237
MUSTAFA JA
A I have nothing to do with Isinane's shares. I have no power of attorney to sign for him. ... It will be difficult to accept Mr. Marealle's evidence on any point of substance.
B Tarimo also gave evidence. He agreed that Mr. Marealle used to act for him in the business. He had trusted Marealle and had left his share certificate with him. He said:
C I did not authorise him to sell any share. He never consulted me regarding transfer of the shares. Up to now I do not know whether the hotel has been sold. He had no authority to sell my shares without my authority.
D The signature on the plaint resembles that of my son. I did not authorise him to sign on my behalf. ...
Mr. Tarimo was a joint plaintiff with Mr. Marealle in claiming recovery of possession of the hotel premises, and yet stated that he was unaware at the time he testified, if the hotel had been sold. He E even denied that the plaint had been signed by his son on his behalf; yet he had appeared as a plaintiff in the action. According to his conduct he had either authorised or ratified and adopted the action of Marealle and his son, despite his denial. It is difficult to give credence to such a witness.
F We have also to consider the evidence of two defence witnesses D.W.3 Siriaki and D.W.8 Joseph. Their evidence would seem to support Patel's claim that Marealle had sold the business to him and Janmohamed. However, for reasons not very plain to us, the judge was not impressed by G them, and since the judge had remarked that they were, from his observation, witnesses of doubtful credibility, we will discount the evidence of these two witnesses.

These were the witnesses who testified to the material facts in dispute before the trial court and from the above account, none of them can be accepted as witnesses of truth, and no reliance can be H placed on their testimony on any matters of importance or substance.

We have rejected the agreement as being void, and we think that the material witnesses who had testified are not credible or reliable. We will have to rely on other evidence and transactions between the parties to discover the truth in this case. However, there are certain facts which are not I in dispute.

1984 TLR p238

MUSTAFA JA

It is common ground that on 6th June, 1977, Mr. Marealle handed over his share certificate for 750 A shares in the hotel, and Mr. Tarimo's share certificate for 250 shares in the hotel to Janmohamed in the offices of the advocate Mr. Akena. He had accepted a cheque for shs. 350,000/= as part payment of the sale of the hotel, and subsequently received four instalment of shs. 25,000/= each. He had B signed on the back of both the share certificates, endorsing them in blank. At the same time Marealle had signed three transfer of share or stock forms in blank, clearly for the purpose of effecting the share transfers to the purchaser. These shares were duly transferred as to 750 shares C to V.P. Patel, as to 150 shares to S. V. Patel and as to 100 shares to Janmohamed and so registered on the 22nd June, 1977, and share certificates in the names of transferees as above were issued on 23rd June, 1977. Janmohamed took over possession of the hotel business on 6th June, 1977.

On 12th October, 1977, Marealle wrote to the hotel stating that the balance of the purchase price D attracted interest at 9% per annum - (Exhibit T.P1).

On 5th December, 1977, the hotel forwarded a cheque for shs. 25,000/= being the fourth instalment payment to Marealle (Exhibit T.P.7). E

On 6th December, 1977, the hotel by a letter signed by V.P. Patel as managing director, replied denying that any interest was payable, and attempted to clarify the payment position (Exhibit P3).

On 21st December, 1977, Marealle wrote to the Registrar of Companies, purporting to lodge a complaint under section 135 of the Companies Ordinance and asked that no application for change F of directors of the hotel should be made. He made the allegation "The property was specifically sold to Mr. Fatehali payment was to be made in instalment. It has now come to my knowledge that Mr. Fatehali is now in the process of selling the hotel to someone else who is not acceptable to me". G (Exhibit T.P.6).

On 7th January, 1978, Marealle wrote to Janmohamed purporting to rescind the sale agreement and stated inter alia:

> Particularly I have been offended by the fact that it has now come to my knowledge that you have transferred H the business without informing me first while you still have to pay me the balance of the purchase price.
>
> Furthermore, I sold the business specifically to yourself (Exhibit P4). I

1984 TLR p239

MUSTAFA JA

A On 21st February, 1978, Marealle wrote to Janmohamed intimating that he was taking back possession of the hotel and returning a cheque for shs. 350,000/= (Exhibit P5).

Mr. Lakha for Marealle and Tarimo submitted before us that since the agreement was void and since B the share transfers flowed from that agreement, the share transfers were equally void. We disagree. The transfer of shares could be and was a separate transaction, independent of the agreement, as indeed was so averred by Patel in paragraph 10 of his amended statement of defence. Mr. Lakha also submitted that Marealle had handed over the share certificates and the transfer forms signed in C blank to Janmohamed under two conditions, one, that the shares were to be transferred specifically to Janmohamed and only so after all the instalments had been paid. He contended that Jahmohamed had breached both these conditions and Marealle was therefore entitled to rescind the sale, and D though not prayed for, presumably to have the shares re-transferred to him and Tarimo.

Mr. Raithatha submitted that Mr. Marealle had fully divested himself of the shares on his own behalf and on behalf of Tarimo when he handed over the share certificates and endorsed them in blank on E the reverse, and signed the share transfer forms in blank, and had no more interest in the hotel.

We think that Mr. Raithatha is right. We can find no evidence that any conditions were attached to the share transfers. Mr. Marealle is an experienced business man, chairman of and running a number F of limited liability companies with an annual turnover of about 20 million shillings. He knew and must have known the effect of handing over share certificates and share transfer forms signed and endorsed in blank to a buyer of his shares in the course of a sale transaction. We are not persuaded G even from a survey of the correspondence we have set out above, that there were conditions attached to the transfer of shares.

Mr. Lakha and Mr. Raithatha cited extensively from authorities regarding the relationship of principal and agent, the position of an undisclosed principal, the right to assign by a purchaser, and Mr. H Lakha even purported to rely on the plea of nonest factum. With great respect to both learned counsel, we do not think that those matters were really relevant. Learned counsel will forgive us if we do not refer to their numerous authorities cited in argument.

I In our view, this was a straightforward transaction, where one party sold and transferred his shares in a company to another party for a consideration. The act of handing over the share certificates

duly endorsed in blank and the signing of the share transfer forms in blank in this case constituted A strong prima facie evidence of an unequivocal act of transfer and constituted the deliveree as owner as against the deliveror. There is no credible evidence to rebut that evidence at all.

Even if it were true that the transfer was subject to the condition that the shares were to be B registered only in the name of Janmohamed, we do not think that could prevent Janmohamed from assigning his shares to Patel. There was nothing special or exclusive in the way of personal consideration in the transaction. The delay in paying the instalment, even if true, could not

entitle C Marealle to rescind the transaction once it was completed and the property in the shares had passed. The party in default could be sued for any sum found due and owing.
Mr. Lakha submitted that the share transfers were forged on the ground that Marealle never intended the shares to be transferred to Patel and that the transfer of Tarimo's shares was no D executed by Tarimo. We have already dealt with these contentions. We are satisfied that Marealle purported to and did act as agent for Tarimo, and from the course of conduct of the sale transaction, the filing of the plaint and the admission by Tarimo that Marealle acted for him in the business, we E are of the view that Tarimo had so authorised Marealle as his agent.
The appeal succeeds. We allow the appeal, set aside the judgment and decree of the High Court and substitute therefor an order that the claim be dismissed with costs, both here and below. The sum of F shs.350,000/= deposited in Court is to be returned to the respondents/ plaintiffs.
Appeal allowed.
1984 TLR p240
G
[zRPz]AFRIKA MWAMBOGO v REPUBLIC 1984 TLR 240 (CA)

Court Court of Appeal of Tanzania - Mbeya
Judge Nyalali CJ, Makame JJA and Omar JJA

July 10, 1985
CRIMINAL APPEAL 37 OF 1984 H
Flynote
Evidence - Dying declaration - Deceased's persistence in implicating assailant - Whether may be relied upon.
Evidence - Identification - Conditions of identification not ideal -Unsafe to convict in the absence of I corroboration.
1984 TLR p241
MAKAME JA
-Headnote
A The appellant was charged with and convicted of murder. In convicting, the trial judge relied on a dying declaration in which the deceased persistently implicated the appellant as his assailant. He also relied on identification evidence which was not corroborated. The high court decision was attacked on appeal.
B Held: (i) The deceased's persistence in implicating the appellant was mere evidence of consistency and honesty but not of correctness;
(ii) in the circumstances of this case the deceased could have been honestly mistaken in his C belief that it was the appellant who shot at him;
(iii) since the conditions of identification were not ideal it was unsafe to convict in the absence of corroborative evidence.
Case Information

D Appeal allowed.
No case referred to.
[zJDz]Judgment
Makame, J.A. read the following judgment of the court. The appellant in this case, Afrika E Mwambogo was sentenced to suffer death following his conviction for the murder of a person called Charles Augustino, an official of the Game Department. The High Court (Chua, J.) was satisfied that it was the appellant who shot the deceased to death in the early evening of 5th March, 1978.
F The Prosecution case against the appellant was based on a Dying Declaration made by the deceased and naming Afrika Mwambogo as the assailant. Mr. Bateyunga, learned counsel, appearing for the appellant before us, has complained that it was unsafe to rely on the G uncorroborated Dying Declaration in the circumstances. Representing the Republic Mr. Teemba, learned Senior State Attorney, supported the conviction.
There was evidence by P.W.1 and P.W.2 that on 5th March, 1978 when they were travelling in P.W.1's motor vehicle at around 6 p.m. they found a person lying on a road, injured. They H recognized him to be the deceased who told them that he had been shot at by Afrika Mwambogo and he asked them to take him to the hospital.
The deceased is said to have continued to implicate the appellant even when he spoke to P.W.3 Ganja Musura the Village Chairman, and to the Police.
I Mr. Bateyunga has pointed out that it was unsafe to convict on the strength of the Dying Declaration in the circumstances, in the
1984 TLR p242
MAKAME JA
absence of some corroborative evidence. He submitted that even though the time of alleged A incident was before sunset the geography of the scene was such that the opportunity for the deceased to see and identify his assailant was not so good so that the deceased might have mistaken the killer for the appellant.
Mr. Teemba rightly submitted that it is possible to convict on an uncorroborated Dying Declaration B where the conditions for identification are ideal. He asserts that the Deceased's was one such declaration. The time was around 6 p.m., the deceased was obviously lucid of mind, and the evidence of P.W.2 shows that although the place was a busy one, one could see between the trees C "as there was ample space".
Our first concern in this appeal was whether it had really been established that the Charles Augustino mentioned in this case is really dead. Matters were not as neatly tied up as they should have been and we indicated, during the hearing of this appeal, that we were thinking that we might D have to order additional evidence. None of the two people mentioned in the Postmortem Examination report as having identified the dead body to the doctor, Chausiku Ramadhani and Esau Nchimbi, nor the policeman alleged to be present during the autopsy. P.C. Brown, was called to E testify. We were informed from the bar that none of these people not even the police officer, could be located. We think that the trial court record should reflect such an assertion.

We have since looked at the record more closely and we are satisfied that, in the particular circumstances, there is reasonable certitude that the alleged deceased is indeed dead. The alleged F assault was in the evening of 6th March and the doctor's report, on Charles Augustino's dead body, was completed on the following day. According to PW.1 when he left the deceased in this case in the hands of the Police the latter said they were taking the deceased to the hospital and just G on the following day the police told him that the deceased had died. There was evidence suggestive of the fact that a muzzle loading gun was used to shoot the deceased, while the foreign bodies found in the dead body examined by the doctor are consistent with the weapon alleged to H have been used in this case. The region of the body in which the wounds were found was more or less the same as indicated by the deceased in this case. The totality of these facts persuades us to hold that it is established that the said Charles Augustino in this case is indeed dead. We wish to remark, however, that we find it hard to believe that even the police officer could not be traced. We I would urge the Prosecution

A to endeavour to avoid such lacunae in future which can, in some cases, cause a miscarriage of justice. So much for the identity of the deceased.

Now whether this deceased was killed by this appellant: We are satisfied in view of the evidence; B that the Afrika Mwambogo mentioned by the deceased in his Dying Declaration is the appellant in this case, and none other, and that the deceased and the appellant knew each other. It is also established that the incident occurred before dusk, when one could see and recognize a person from a distance. What bothers us is the geography of the place. The area was richly verdant, and with C trees. One description, by P.W.1, is that "The bush was tall but the grass was about 3 feet high. The bush was thick ... The forest was very thick. A person standing about 20 paces could not be seen".

D The deceased was encumbered with two bottles of milk and, evidently, a gun, and according to what he allegedly told P.W.3, he was shot at before he looked "at the direction" and when he did so is when he saw the appellant running away. The assailant was presumably running away with his back to the appellant, in an area already described, in circumstances of traumatic surprise. In his E judgment the learned trial judge correctly pointed out that there was no evidence of the distance between the assailant and the deceased, no evidence of how long the latter was able to observe the former, or whether the assailant was on the road or in the bush. The learned trial judge seemed F influenced by, among other things, the fact that the appellant and the deceased had known each other before, the sun had not yet set, and that in 1976 the deceased had caused the appellant's arrest. He noted also that 'there was a thick bush around the road' but he did not say what the effect of this might have been.

G Evaluating the evidence on identification, we are respectfully of the view that the conditions of identification cannot be said to have been ideal. Unlike the learned trial judge, we are further unable to assert, as he did, that the Post Mortem Report can make one opine that the deceased was shot at H from the front, with the implied suggestion that this would have promoted the deceased's chances of recognizing his assailant.

We think that the deceased was quite honest in implicating the appellant in the dying Declaration and we agree that he reportedly did so. We are of the carefully considered view, however, that we I cannot safely discount the very real possibility, in the circumstance, that the deceased could have been honestly mistaken in his belief
1984 TLR p244
that it was the appellant who shot at him. The deceased's persistence in implicating the appellant, A which seems to have heavily influenced both assessors, is thus mere evidence of consistency, and of honesty even, but not of correctness. This was March, 1978 and only in 1976 the deceased had allegedly accused the appellant of killing a buffalo and the appellant was arrested. The case was B eventually withdrawn, so the appellant was not only known by the deceased to be at large but was presumably believed by the deceased to possess a gun, and able to use it; and have grudges against the deceased. The appellant's name would in the circumstances naturally rush to the deceased's mind, once he was shot at in the bush. C
We are satisfied in the absence of corroboration it would be unsafe to uphold the conviction. We accordingly allow the appeal and consequently quash the conviction, set aside the sentence and order the appellant's immediate release unless he is otherwise lawfully in custody. D
Appeal allowed.
1984 TLR p244
E
[zRPz]ELIASI SEIF v REPUBLIC 1984 TLR 244 (CA)

Court Court of Appeal of Tanzania - Mbeya
Judge Nyalali CJ, Makame JJA and Omari JJA

July 10, 1985
CRIMINAL APPEAL 19 OF 1984 F
Flynote
Criminal Law - Provocation - One's uncle committing adultery with wife of another uncle - Whether provocation.
Criminal Law - Mistake of fact - No indication whether a witness could have known about the mistake of fact G - Whether failure by prosecution to call such a witness would lead to an adverse inference against the prosecution.
-Headnote
The appellant was convicted of murdering his uncle. On suspicion that the deceased was H committing adultery with the wife of his other uncle, he hit him with a pounding stick. On appeal the defences of provocation and mistake of fact were considered.

Held: (i) A reasonable or ordinary person would not have been provoked by finding one of his uncles or any person committing adultery with the wife of another uncle of his; I
1984 TLR p245

NYALALI CJ

A (ii) a mistake of fact concerns a state of mind of the person making the mistake;

(iii) Stahimili's evidence would have been crucial only if there was indication or a probability that she could have known about the mistake of fact made by the appellant.

Case Information

B Appeal dismissed.

No case referred to.

G. Mbusa and Mushokorwa for the appellant

C E.F. Kapinga, for the Republic

[zJDz]Judgment

Nyalali, C.J. delivered the following judgment of the court: The appellant, namely Eliasi Seif, was charged and convicted in the High Court at Morogoro for the offence of murder c/s 196 of the Penal D Code and was sentenced to suffer death by hanging. He is aggrieved by the conviction and sentence, hence this appeal to this court. Messrs Mbusa and Mushokorwa, learned Counsel appeared for him in this court, whereas Mr. Kapinga, learned State Attorney represented the respondent Republic.

E On the record of proceedings both before this court and the High Court, the following primary and secondary facts are either common ground or undisputed between the parties: Sometime during the night of 28th September, 1976 in Ibingu village within the Kilosa District of Morogoro Region, F the appellant attacked one James Hamisi with a pounding stick or pestle at the home of one Waziri Hamisi. The said James Hamisi was a brother of the said Waziri Hamisi who happened not to be at his home. Waziri Hamisi's wife, namely one Stahimili, was present when the attack took place. The G appellant is a nephew of both Waziri Hamisi and James Hamisi. One Tengeza Saanane - that is the first prosecution witness (P.W.1), a neighbour and cousin of Waziri Hamisi, heard a woman's cry of protest emanating from his cousin's home and decided to go and see what was happening but the appellant threatened to assault him if he went closer to the scene. The said James Hamisi then H managed to escape for his own safety, The following day, the appellant was apprehended in the same village by the second prosecution witness (P.W.2) and he accompanied the said James Waziri who was carried to Kilosa Government Hospital. While at Kilosa, the appellant as re-arrested by the I police. On the 8th October, 1976, the said James Waziri died at the hospital and a postmortem examination was performed by a government doctor.

1984 TLR p246

NYALALI CJ

With regard to primary and secondary matters which, on the proceedings in this court and the court A below, are in dispute between the parties, it is the prosecution case that the death of the deceased resulted from the appellant's attack and that the appellant intentionally killed him without lawful justification or excuse. On the other hand, it is the contention of the defence that the appellant B attacked the deceased thinking that it was a hyena which had invaded his uncle's home. It is part of the defence case that the appellant's actions and thinking were under the influence of alcohol which he had been drinking for a long time.

The first point for consideration and decision is whether the appellant could have been drunk when C he did what he did. The learned trial judge specifically considered this point in his judgment and stated:

Finally, I will consider whether the accused was so drunk so as to be incapable of forming the intent to kill or to D cause grievous bodily harm. The accused himself has denied that he was so drunk although he had been drinking for a long time, namely from 10 a.m. to 12 midnight. The gentlemen assessors did not find any evidence of drunkenness of such a nature which would have made accused incapable of forming the E prerequisite intent. I do not find any evidence of such drunkenness which made the accused incapable of forming the prerequisite intent. F

This finding of the trial court on the issue of drunkenness has not been challenged on appeal and we see no reason to re-examine it further.

The next point for consideration and decision is whether the appellant mistook the deceased for a G hyena when attacking him. The learned trial judge also specifically considered this point in his judgment and stated:

From the evidence as a whole, I find no difficulty in rejecting the defence story about the hyena being in the H house of Stahimili. This story cannot be possibly true for the following reasons: If the story were true, the accused who had more than one occasion to explain why he had assaulted the deceased would have given this story. ... Secondly, if the story of the accused about the hyena were true, the accused who was represented I would have challenged the witnesses in cross-

A examination when they claimed that he told them that he had beaten the deceased because he though it (sic) was a stranger sleeping with his uncle's wife. Nowhere does the accused allude to the hyena story except when he began giving his defence.

B Mr. Mbusa, learned counsel for the appellant, has submitted in effect that the learned trial judge erred in coming to this conclusion on this point as there was a failure by the prosecution to call Stahimili - that is, the appellant's uncle's wife who was present when the attack took place. He C argues that this failure on the part of the prosecution gives rise to an adverse inference that the prosecution decided not to call this eye witness because she would have supported the appellant's evidence concerning his mistake about the hyena. Surprisingly this submission was supported by D Mr. Kapinga on behalf of the Republic, We say 'surprisingly' because Mr. Kapinga did not indicate that he was not supporting the conviction until we pressed him to say so.

With due respect to both Mr. Mbusa and Mr. Kapinga, we do not think that such an adverse E inference can be drawn from the circumstances of this case. A mistake of fact concerns a state of mind of the person making the mistake. So, Stahimili's evidence would have been crucial only if there was indication or a probability that she could have known about the mistake of fact made by F the appellant. In his testimony given in his defence at the trial, the appellant stated inter alia:

When I got to the home of my uncle I said 'Hodi'. The woman replied 'Karibu'. Then she asked who I was. I G told her. Then she asked what I wanted. I told her to give me my clothes for covering myself. She asked where the cloth was. I said it was hung up in the house. Then she said 'who is here?' I asked, 'but the door is shut?' She said, 'There must be something'. Then she opened the door and came out. Then I entered the house. Then I looked under the bed and then I asked, 'what is here?' I got no reply. I did so four times. Then H I saw something move towards me. I then took a pounding stick as I thought it could be a hyena. The stick was inside the house. I hit once. I hit at the face. Then the man I hit ran out. Asked Stahimili who was outside what that man was. Then I told Stahimili to go back to sleep there. But she refused. I then escorted I her to Tengeza's house ...

1984 TLR p248

NYALALI CJ

It is obvious from the appellant's own testimony that Stahimili did not know and could not have A known about the appellant's alleged mistake of fact since she was outside the house when the appellant allegedly was mistaken after he had entered the house to look under the bed. There is no likelihood therefore that her evidence could have supported the appellant's defence or undermined B the prosecution case. That is why we are unable to draw an adverse inference against the prosecution for failure to call her to give evidence in this case, although, of course, the failure makes us curious about what she might have said.

The other important consideration arises from what the appellant stated to P.W.2 and to the police C officer - that is, the third prosecution witness (P.W.3). These witnesses testified to the effect that the appellant told them that he attacked the deceased upon the mistaken belief that the deceased was a stranger committing adultery with his uncle's wife. This evidence raises the issue of D provocation which was specifically considered and ruled out by the trial court. The learned trial judge stated inter alia in his judgment.

The gentlemen assessors were of the view that a reasonable man would have called out for help so as to arrest E the stranger. I am of the same view. I am not convinced that a reasonable man or an ordinary man would have lost his head and reacted by beating the stranger on the head with a pounding stick...

We concur with the view of the gentlemen assessors and the learned trial judge on this point. We F are satisfied that a reasonable or ordinary person would not have been provoked by finding one of his uncles or any person committing adultery with the wife of another uncle of his. At worst he would be shocked and scandalized.

The other important point is whether the deceased died as a result of the appellant's attack. This G issue poses no problem as the medical evidence clearly shows that death was due to head injury and brain damage. Obviously the appellant's attack killed the deceased.

Finally, we have to consider and decide whether the appellant had malice aforethought and had no H lawful justification or excuse in killing the deceased. The learned trial judge found the existence of malice aforethought from the nature of the weapon used and the location of the injury inflicted. We respectfully concur. On the evidence, there could not have been and there was no lawful I justification or excuse for killing the deceased. The appellant was

A therefore properly convicted. Since the sentence of death by hanging is mandatory by law, we dismiss this appeal in its entirety.
Appeal dismissed.

B
[zRPz]JUMA ZUBERI v REPUBLIC 1984 TLR 249 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mustafa JJA, Kisanga JJA and Omar JJA

August 15, 1985
C CRIMINAL APPEAL 7 OF 1984
Flynote
D Criminal Law - Murder - Robber abducted child - Robber was the last person to be in custody of or in possession of the child - Child found dead after a month - Whether robber is responsible for the death of the child.
-Headnote
The appellant was recognized as one of the robbers who had waylaid and attacked a party in a motor E vehicle on the road at night. In the course of the robbery a 5 year old child was abducted by the appellant. The child could not be found. A month later remains of a child were found in the bush about 1 mile from the incident. Evidence established that the remains were of the abducted child.
F The appellant was convicted of murdering the child. He appealed to the Court of Appeal arguing, inter alia, that there was no evidence as to the cause of death of the child.
G Held: The appellant had caused the death of the child in terms of section 203(e) of the Penal Code because the child was in his custody and possession and he had abandoned her in the bush and this, certainly, for whatever cause, brought about her death.
Case Information
H Appeal dismissed.
No case referred to.
[zJDz]Judgment
Mustafa, J.A. read the following judgment of the court: The appellant was recognised as one of the I robbers who had waylaid and attacked a party in a motor vehicle on the road at night. P.W.1 and P.W.2, who were passengers in the motor

MUSTAFA JA
vehicle saw and identified the appellant by the head lights of the vehicle as the appellant A approached it. The appellant was their co-villager and they had known the appellant for a long

time before the incident. In the course of the robbery a 5 year old child of P.W.1 was snatched away by the appellant.

The child could not be found, and a month later, some human bones and a skull and some hair were B discovered in the bush about 1 mile from the incident. Near the bones were the clothes and ear rings worn by the said child at the time she was abducted. The bones and skull were found to be that of a child between 5 - 15 years by the pathologist and the hair was human hair, as found by the C Government Chemist. In our view this evidence sufficiently established that the bones and skull and hair were those of the abducted child.

We are also satisfied that the appellant was properly identified. P.W.1 immediately reported to the D authorities that the appellant was one of the robbers and that it was he who had abducted the child. Both P.W.1 and P.W.2 described the clothes the appellant was allegedly wearing at the time of the robbery, and such clothes were found in the appellant's house when it was searched.

Miss Mutabuzi for the appellant had submitted that there was insufficient evidence of the cause of E death and also that the circumstances do not point irresistibly to the appellant as the one who had killed.

We are satisfied that the appellant was one of the robbers, that he had abducted the child and was F the last person seen with the child when the child was alive. The bones of the child were found a month later about 1 mile from the scene of the incident. The appellant gave no explanation as to what he did to the child after he had abducted her. It is true there is no evidence as to how the child died; she might have been assaulted and killed or might have died of starvation or attacked by wild G animals after she was abandoned in the bush, or from some other cause.

However the child was in the custody and possession of the appellant, and he, at the least, had abandoned her in the bush, and this certainly, for whatever cause, brought about her death. Clearly H the appellant had caused the death of the child in terms of section 203(e) of the Penal Code. We are satisfied that the circumstances irresistibly indicate the appellant as the person, or one of the persons, who had killed the child in the course of a robbery. We think that his conviction for murder was justified. I

Appeal dismissed.

1984 TLR p251

A

[zRPz]SHELL AND BP LTD v WILBARD FULGENCE RWENYAGIRA 1984 TLR 251 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Mustafa JJA, Makame JJA and Kisanga JJA

October 18, 1985

B CIVIL APPEAL 25 OF 1984

Flynote

Rent Restriction Act - Landlord and Tenant - National Housing Corporation exempted from the provisions of C sections 19 and 20 of the Rent Restriction Act - Such exemption attaches to premises.

Landlord and Tenant - Tenant sublets to its employee - Tenant seeks to repossess premises on employee resigning from employment - Landlord offers tenancy to the subtenant - Whether such offer terminates D tenancy between the landlord and the tenant- Rent Restriction Act, ss. 19 and 20 - G.N. 86 of 1970.

-Headnote

In 1971 the appellant leased some premises for occupation by its employees. In 1972 due to the operation of the Acquisition of Buildings Act the suit premises became vested in the National E Housing Corporation. From then on the appellant continued to pay rent to the National Housing Corporation. The house which was furnished by the appellant was allocated to the respondent, employee of the appellant, in 1974. The respondent resigned from employment of the appellant in March, 1979. The appellant then called upon him to vacate the premises. He refused to vacate F claiming that he was a "lawful tenant/subtenant of Messrs, National Housing Corporation." He produced a document from the National Housing Corporation offering him tenancy of the suit premises.

The trial magistrate found that on the strength of the letter of offer of tenancy to the respondent by G the National Housing Corporation, the landlord, the respondent was the lawful tenant of the premises. The first appellate court agreed with the trial magistrate on this point. The judge held that since National Housing Corporation is exempted from the provisions of sections 19 and 20 of the H Rent Restriction Act by virtue of G.N. 86 of 1970 it could recover possession of the suit premises from the appellant without the necessity of going to court. The court was of the view that the letter of offer of tenancy to the respondent constituted the termination of the appellant's tenancy of the suit premises.

I The appellant appealed against the finding that the respondent and not itself is the lawful tenant of the suit premises.

1984 TLR p252

MUSTAFA JA

Held: (i) Exemption from the provisions of sections 19 and 20 of the Rent Restriction Act by virtue of A G.N. 86 of 1979 has nothing to do with the termination of tenancy or with the recovery of possession;

(ii) the offer by National Housing Corporation of a tenancy to the respondent could not be construed as an act terminating the appellant's tenancy; B

(iii) the appellant was entitled to recover possession on the termination of the respondent's employment.

Case Information

Order accordingly. C

No case referred to.

M.J. Raithatha, for the respondent

R.C. Kesaria for the appellant

[zJDz]Judgment
Mustafa, J.A. read the following judgment of the court: The background to this appeal is briefly as D follows. A house on Plot 28, Block D along Upanga Road, Dar es Salaam was leased by Shell and B.P. Tanzania Ltd. (hereafter called Shell) from its owner in 1971. Shell had leased the said house E and some other premises for occupation by its own employees. In 1972, due to the operation of the Acquisition of Buildings Act the house became vested in the National Housing Corporation which became its landlord. Shell continued payment of the rent of the house to the National Housing Corporation. Shell had furnished the house and sometime in 1974, Wilbald Fulgence Rwenyagira F (hereafter called the respondent) an employee of Shell, was allocated the said house for his occupation. It is common ground that the respondent occupied the said house by virtue of his employment with Shell, that Shell was paying shs.800/= the monthly rent of the house, and that 12 G 1/2% of the respondent's salary was deducted at source toward such rent. When the respondent occupied the house, he signed an inventory of furniture and articles which was exhibited at the trial court.
The respondent resigned from Shell in March, 1979. Following such resignation Shell called upon H the respondent to vacate the house. By letter date 12.7.79 the respondent wrote back that he expected to move out by the end December, 1979 and he asked Shell to deduct the rentals due until December, 1979 from monies belonging to the respondent in the hands of Shell, and agreed to Shell I checking the furniture in the house.
1984 TLR p253
MUSTAFA JA
A However on 15.8.79 the respondent filed a suit in the Resident Magistrate's Court, Dar es Salaam, claiming that he was the "lawful tenant/sub-tenant of Messrs. National Housing Corporation" in respect of the house on Plot 28 Block D. He complained that Shell was committing unlawful acts in B order to evict him and prayed for an injunction to restrain Shell from doing so. A temporary injunction was issued in favour of the respondent.
Shell filed its defence and denied that the respondent was the lawful tenant or sub-tenant of National Housing Corporation and maintained that the respondent occupied the suit premises as its C employee. As the respondent had left his service with Shell, the respondent had lost his right of occupation and Shell counterclaimed for vacant possession of the premises and the return of the furniture and articles, and for damages for loss of use of such articles and furniture at Shs. 1,000/= D per month until the return of the articles and furniture.
At the trial in the Magistrate's Court the respondent claimed that he had been offered the tenancy of the suit premises by National Housing Corporation. He produced a document from National Housing Corporation dated 16.1.80.
E The trial magistrate found that the respondent was the tenant of the suit premises on the strength of the letter from National Housing Corporation to him dated 16.1.80 and that Shell was not entitled to vacant possession. He also held that as the furniture was in the suit premises Shell had lost its F right to it once National Housing Corporation became the landlord. He gave judgment for Shell in the sum of Shs.5,600/= being rent paid by Shell on behalf of the respondent to the end of December, 1979.

Shell appealed from that judgment to the High Court. The judge (Bahati, J.) held that the National G Housing Corporation was exempted from the provisions of sections 19 and 20 of the Rent Restriction Act by virtue of G.N. 86 of 1970 and could recover possession of the suit premises from Shell without the necessity of going to court, despite the provisions of section 11(A) 91) of the Rent Restriction Act. When National Housing Corporation forwarded the document dated 16.1.80 to the H respondent that constituted a valid tenancy agreement and presumably that also constituted the termination of Shell's tenancy of the suit premises. The judge upheld the finding of the Magistrate that the respondent was the tenant of National Housing Corporation of the suit premises and I declined to rule whether the sub-tenancy of the respondent with

1984 TLR p254

MUSTAFA JA

Shell came to an end on the termination of his employment in the circumstances. A

The judge held that the furniture and articles listed in the inventory belonged to Shell and ordered the return of such articles to Shell by the respondent. He also assessed damages for loss of use at the rate of shs. 1,000/= per month from 25.5.79 to the date the furniture and articles are returned to B Shell by the respondent. He also upheld the Magistrate's order that the respondent shall pay Shell the sum of shs. 5,600/= for rent due to 31.12.79.

From that judgment Shell has appealed to this Court. Shell has appealed against the finding that the respondent, and not Shell, is the lawful tenant of the suit premises. The respondent has cross- C

appealed against the judge's finding that the furniture was the property of Shell and the order for its return and against both the award of damages and its quantum for loss of use. The respondent in the alternative contended that Shell had not alleged or established that the conditions needed for D re-possession in terms of Section 19(1) (e) and 19(2) of the rent Restriction Act had been complied with.

We will deal with the issue of vacant possession claimed by Shell first. It is clear that National E Housing Corporation became Shell's landlord of the suit premises by virtue of the Acquisition of Buildings Act in 1972. However the tenancy of Shell had not been terminated at any time and Shell remained the tenant of the suit premises. It is true that National Housing Corporation is exempted from the provisions of section 19 and section 20 of the Rent Restriction Act by G.N. No. 86 of 1979, F but those provisions have got nothing to do with the termination of tenancy or with the recovery of possession. Those provisions only create conditions which have to be complied with before possession is granted. There was no evidence of any kind that National Housing Corporation has G terminated Shell's tenancy, or has recovered possession of the premises.

The offer by National Housing Corporation of a tenancy to the respondent by its letter of 16.1.80 could not be construed as an act terminating Shell's tenancy. It is worthless for that purpose. Shell H remains the tenant of the suit premises and the respondent had occupied the premises from Shell by virtue of his employment. Shell was entitled to recover possession on the termination of the respondent's employment. Mr. Raithatha has pointed out that Shell has not

established that it I required the premises for some other employee in its employment in terms of section 19(1)(e) of the Rent
1984 TLR p255
MUSTAFA JA
Restriction Act or that it was reasonable to make the order of re-possession in terms of section 19(2) of the said A Act. That is true. However we have carefully considered G.N. 86 of 1970 the relevant part of which reads:

(1) ... B

(2) All premises in respect of which the National Housing Corporation established by the National Housing Corporation Act, 1962, is the landlord, are hereby exempted from the provisions of section 19 and section 20 of the Rent Restriction Act, 1962, and from all other provisions of the said Act which operate so as to confer upon a tenant a D statutory tenancy upon the determination of his contractual tenancy.

Obviously National Housing Corporation is the landlord, albeit the head landlord, in respect of the suit premises. As such the premises are exempted from the provisions of sections 19 and 20 of the Rent Restriction Act. Mr. Raithatha submitted that the exemption can only apply if National Housing Corporation is the direct landlord, and is itself involved in re-possession. We do not agree. The exemption would seem to attach to premises of which E National Housing Corporation is the landlord. Such premises are exempted premises, just as certain premises are rent controlled premises. If G.N. 86 of 1979 is construed in accordance with Mr. Raithatha's submission, a curious result will emerge. The respondent would be a protected tenant vis-a-vis Shell, but once National Housing F Corporation recovers possession, the respondent's protection ceases, although he remains in occupation of the same premises. That cannot be right. We agree with Mr. Kesaria's contention that as the suit premises are exempted premises, the conditions of section 19 and section 20 do not apply to Shell for its recovery of the premises from the G respondent. Shell is entitled to an order of possession.

As regards the order for the return of the furniture and articles, the evidence clearly establishes that those articles were supplied by Shell. There was also evidence of demand of the return of the articles by Shell. We are satisfied H that the High Court was right to order damages for loss of use of such articles. We have had sight of the inventory, as had the judge. It is true, as Mr. Raithatha has contended, that the figure of shs. 1,000/= a month for loss of use assessed by the judge is arbitrary. But in view of the variety, range and quantity of the furniture and I articles, consisting of both so-called soft and
1984 TLR p256
hard furnishings, we are unable to say that the sum assessed is unreasonable or needs interference. A We do not think that we should substitute our arbitrary figure for that of the judge. It is true that Shell should have led evidence as to the cost or value of the articles, but in the circumstances we do not think that the omission is fatal, as there was sufficient material for an assessment to be made. B

In the result we allow the appeal of Shell, set aside the judgments of the courts below declaring the respondent as the tenant of the suit premises, and substitute therefor an order that the

respondent vacates the suit premises on or before 15th November, 1985. The respondent is also to pay mesne C profits to Shell for the suit premises at the rate of Shs. 800/= per month for such sum as would be found due and owing to Shell by the respondent.
The cross appeal of the respondent is dismissed in its entirety.
We award Shell the costs of the appeal and the cross appeal. D
Order accordingly.
1984 TLR p256
E
[zRPz]ALFI EAST AFRICA LTD v THEMI INDUSTRIES & DISTRIBUTORS AGENCY LTD
1984 TLR 256 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mustafa JJA, Makame JJA and Kisanga JJA

September, 1985
CIVIL APPEAL 28 OF 1984 F
Flynote
Contract - Fraud - Conspiracy between employee of appellant company and respondent company to defraud appellant - Agreement void and unenforceable.
Contract - Sale of machinery - No price agreed - Agreement void for uncertainty - S. 29 Law of Contract G Ordinance, Cap. 433.
-Headnote
Kwast, an employee of the appellant company entered into an agreement on behalf of the appellant with the respondent company. According to the terms of the agreement all the advantages were on H one side, in favour of the respondent. Two pieces of machinery specifically ordered by the appellant for itself were diverted to the respondent by Kwast under the agreement. The respondent was to pay the price of the machinery which price was not mentioned nor was a method of calculating it agreed upon. When Kellner, a Director and principal shareholder of the respondent I company came to know
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about this he had the Board of Directors cancel the agreement. The respondent then claimed special and general A damages from the appellant for breach of contract.
The trial judge held, among other things, that there was no evidence of fraud nor was the agreement uncertain as regards the price of machinery. B
On appeal to the Court of Appeal of Tanzania the holdings of the trial judge were attacked. It was argued that the agreement was void for uncertainty and that it was fraudulent.
Held: (i) Price is a fundamental matter in an agreement of sale such as the one under consideration, and as there was C no agreed price there was no agreement; in terms of s. 29 of the Law of Contract Ordinance, Cap. 433, the agreement is void for uncertainty;

(ii) the agreement was unenforceable and void on the ground that it was fraudulent as a result of a conspiracy between Kwast and Themi, the respondent. D

Case Information

Appeal allowed.

Case referred to E

1. Courtney & Fairbairn Ltd. v Tolaini Bros (Hotels) Ltd [1975] 1 All E.R. 716.

[zJDz]Judgment

Mustafa, J.A. delivered the following judgment of the court: Themi Industries & Distributors Agency Ltd. F (hereafter called Themi) had filed a case in the High Court against Alfi East Africa Ltd. (hereafter called Alfi) claiming special and general damages arising from an alleged breach by Alfi of an agreement in writing entered into between them on 3d February, 1978. Alfi resisted the claim on the ground that the agreement was void and G unenforceable and was fraudulent and counterclaimed for the return of two pieces of machinery or their value and for loss of use of the machinery as well as for a sum of money allegedly due for raw materials supplied by Alfi to Themi.

The High Court (Maganga, J.) entered judgment for Alfi on the counterclaim by consent in the sum of shs. H 545,192.30 and costs in respect of the item for raw materials supplied by Alfi. The High Court entered judgment, after a trial, in favour of Themi on its claim and awarded it shs. 300,000/= for special and shs. 200,000/= for general damages and costs of the suit. The High Court also I

decreed in favour of Alfi on its counterclaim a sum of shs. 839,391.45 being the value of the A machinery.

Alfi has appealed from the judgment, but Themi has not cross-appealed.

It will be convenient at this stage to set out the agreement (hereafter called the Agreement) in full. B

THIS AGREEMENT is made this 3rd day of February, 1978 BETWEEN ALFI EAST AFRICA LIMITED (hereinafter called the "First Company") on one part and THEMI C

INDUSTRY AND DISTRIBUTIORS AGENCY LIMITED (hereinafter called the "Second Company") on the other part.

WHEREAS the parties hitherto who have hitherto carried on the business of manufacturing goods as well as D buying and selling manufactured goods in Tanzania separately on their own respective accounts (and are both registered companies in Tanzania under the Companies Ordinance Cap 212) are desirous of effecting an exclusive business between the two parties: E

NOW IT IS HEREBY AGREED as follows:

I Alfi E.A. Limited hereinafter called the First Company in this deed binds itself to order and import HESTA F BLOW MOULDING MACHINES on behalf or on account of THEMI INDUSTRIES AND DISTRIBUTORS AGENCY LTD (hereinafter called the Second Company IN THIS DEED) for their exclusive use in manufacturing of Torches, Vacuum Flasks, Household

goods etc. PROVIDED and on condition that the Second G Company covenants itself as follows:

(a) That the Order and importation of the mould by the First Company will be according to the selection of the second Company. H

(b) That the order and importation will not in any way affect the quote of importation of the first company (Alfi E.A. Ltd).

(c) That Alfi E.A. Ltd hereinafter called the first company will have the first priority and exclusive rights to I buy from THEMI INDUSTRY AND DISTRIBUTORS AGENCY

A LTD the blow moulding items according to the first company's specification.

(d) That the second company covenants that the event of its desire to sell such products to another party other than Alfi E.A. Ltd such desire shall only be executed after full consultation and permission of the B first company within reasonable time.

(e) That payments for the imported moulds and machines by the first company on behalf of the second company will be made by way of deducting directly the cost of manufactured products supplied by C second company to the first company without interest. In the event of the manufactured products failing to satisfy the cost of the imported moulds the second company shall bind itself to pay the outstanding amount from its other sources.

D OTHER CONDITIONS:

Each party hereto hereby undertakes to employ himself diligently in the practice of manufacturing according to E business ethics as to quality and to use his best endeavour to promote the interest there and will deal faithfully and justily with the other Parties hereto.

The Parties further covenants that this agreement can be determined at the option of either party to this F agreement after giving six months notice of the intention to determine and after each party has fully satisfied the other party as to outstanding monies to be paid if any or outstanding orders of goods to be supplied.

G SIGNED for and on behalf of
ALFI EAST AFRICA LIMITED in
my presence this day
H of.....1978.
SIGNED for and on behalf of
THEMI INDUSTRY AND DISTRIBUTORS
AGENCY LIMITED in my presence
I this.....day of.....1978

DRAWN BY: A
M/S KAPOOR & MIRAMBO ADVOCATES
ARUSHA
TANZANIA

J. Kwast had signed for Alfi in the agreement. B

We will deal with the claim by Themi. In its plaint, after referring to the agreement, the material paragraphs are 4, 5 and 10 which read: C

4. In accordance with the terms and conditions of the said agreement the Defendant obtained on account of the Plaintiff HESTA BLOW MOULDING MACHINES. The total costs of these machines amounted to Shs.939,391/45. This sum of Shs. 939,391/45 was to be paid to the Defendant by the Plaintiff by way of supply finished products in D accordance with the defendant's demands from time to time.

5. Pursuant to the said agreement the Defendant regularly supplied all raw materials to the Plaintiff for the Plaintiff's factory at Arusha. Such purchases were paid in cash. E

10. On 17th April, 1979 the Defendant wrote to the Plaintiff (a copy of the said letter is attached herewith and marked Exhibit 'B') canceling the said agreement and demand return F of machinery and payment of all moneys due. By this letter the Defendant committed a breach of the said agreement whereby Plaintiff has suffered damages.

Then Themi claimed special and general damages arising from the refusal of Alfi to continue to G supply raw materials.

In its statement of defence Alfi alleged in paragraphs 2, 3, 5 and 8 as follows:

2. The Defendant states that the Agreement referred to in paragraph 3 of the Plaint was H entered into by the Plaintiff and one J. Kwast purportedly on behalf of the Defendant Company. The Defendant will maintain that the said Agreement is void because it was entered into with the object of defrauding the Defendant Company. I

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A 3. Alternatively and without prejudice to the foregoing the Defendant states that the Agreement was ultra-vires the powers of J. Kwast who executed it.

5. The Defendant has not at any time provided raw materials to the Plaintiff under B contractual arrangements. The Defendant avers that the Plaintiff used to purchase raw materials from the Defendant under credit facilities which have now been stopped by the Defendant. Subject to the foregoing and without prejudice to paragraphs 2 and 3 herein, C the Defendant states that there is no provision in the agreement which requires the defendant to supply the Plaintiff with raw materials.

8. Save that the Defendant wrote the letter referred to in paragraph 10 of the Plaint, the D defendant denies the allegation that there has been a breach of the Agreement and repeats paragraphs 2 and 4 hereof.

E Alfi also filed a counterclaim to which reference has already been made.

Alfi's defence to Themi's claim was basically that the Agreement was unenforceable and was made in fraud between J. Kwast, an employee of Alfi and Themi. Two other matters were also in issue. They were (1) whether J. Kwast had acted ultra vires in signing the Agreement and (2) whether a F sum of Shs. 100,000 paid by Themi for machinery could be appropriated by Alfi to the account for raw materials.

The trial judge, in his judgment, found that J. Kwast had acted intra vires when he executed the Agreement on behalf of Alfi.

G As regards the issue of fraud the judge held that section 14 of the Import Control Ordinance which prohibits the holder of any import licence, without permission, to transfer or assign such licence to another on pain of a penalty, did not render the transfer of the machinery imported in the H name of Alfi and transferred to Themi illegal so as to vitiate the Agreement. He thought that the prohibition was against the transfer of the import licence, not the goods imported. In any event, the details for importation were filled in and Themi had not breached any statutory provisions.

The judge also held that there was no uncertainty as regards the price for the machinery. He held I that in the Agreement it was specifically mentioned how the machinery was to be paid. And,

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according to Ibrahim Dahal, the Director of Themi, the price of the machinery had been agreed upon A and was not dependent on future negotiation. Although the agreed price was not mentioned by Dahal, the judge found that the piece of evidence stood unrebutted. He held that the agreement was neither fraudulent nor void for uncertainty or lack of consideration. B

As regards the obligation to supply raw materials by Alfi, the judge conceded that there was no such undertaking in the Agreement, but he accepted Dahal's evidence that there was some mutual, presumably oral, agreement between him and Kwast to that effect.

The judge referred to the letter of 17.4.79 written by Alfi cancelling the agreement. We set it out in C full.

Alfi East Africa Limited.
P.O. Box 996,
Arusha. D
17th April, 1979
The Managing Director,
Themi Industry & Distribution Agency, E
P.O. Box 106,
Arusha
Dear Sir, F
Re:CONTRACT BETWEEN ALFI EAST LIMITED AND THEMI INDUSTRY 7 DISTRIBUTION AGENCY

In our Board of Directors Meeting on the 15th April, 1979 the majority of Directors voted to cancel the G contract between both companies. I have also been given instructions not to supply any goods at the moment to you either for your trading or for your manufacturing section and also to collect the outstanding trading balance without further delay. Machinery should be returned straight away. H

Please supply all the containers which you have manufactured up to the time of receiving this letter and stop producing bottles according to our contract. I

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MUSTAFA JA

A Yours faithfully,

ALFI EAST AFRICA LIMITED

J. KWAST,

B MANAGING DIRECTOR

c.c. Mr. O. Kellner,

P.O. box 116

ARUSHA.

C The judge held that the letter appeared to confirm the existence of an understanding testified to by Dahal. The judge held that Alfi was bound to supply raw materials to Themi.

The judge also held that Alfi was not entitled to appropriate the shs. 100,000 paid for the machinery D to the raw materials account.

After hearing counsel for Themi and Alfi and after carefully perusing the proceedings and judgment of the trial we are satisfied that J. Kwast had acted intra vires in executing the Agreement on behalf E of Alfi. According to O. Kellner, a Director and principal Shareholder of Alfi, Kwast was de facto, though not de jure, managing director of Alfi. Kwast was held out as a managing director of Alfi and clearly had power to execute the Agreement on behalf of Alfi.

We now turn to the issue of fraud. We have carefully perused the Agreement and analysed the F evidence adduced at the trial. Kwast was only an employee of Alfi. All the shares of Alfi were owned by Kellner and his wife. In terms of the agreement, all the advantages are on one side, in favour of Themi. Alfi was to set up an industry for Themi; in fact was to set up a rival company in G Themi, which was to manufacture goods normally produced by Alfi. Alfi was to provide the capital. Alfi had an import licence quota, and apparently used that quota to obtain the machinery for Themi. Dahal had stated that he had no experience at all of such machinery; in fact Themi had been merely the distributing agent of Alfi products. Themi did not pay a cent for the machinery; in H evidence Dahal said that it was not necessary for him to have money to buy the machinery. Themi had a nominal capital of Shs. 50,000 and a fully paid up capital of shs. 2,000/=. There was no security offered for the machinery, nor indeed was interest payable. The machinery was worth about one I million shillings, presumably in foreign exchange. There was no provision

for the repayment period, nor even when repayment was to commence. In fact the price for the A machinery was not mentioned in the Agreement.

Alfi was to provide an assured market for the goods manufactured by Themi. Alfi was also alleged to be liable to supply raw materials to Themi for such manufacture, on credit. The raw materials B supplied amounted nearly to a million shillings. Again there was nothing in the Agreement about the price of such raw materials nor how and in what manner payment was to be made. There was no security provided for such credit sales, nor was interest on outstanding sums mentioned. The Agreement was so blatantly one sided in favour of Themi that it is incredible. The Agreement was C solely for the benefit of Themi at the expense of Alfi.

Dahal alleged that the Agreement was entered into because Alfi had lacked space to put up the two pieces of machinery in Alfi's premises. No other reason was advanced. Dahal said that Kwast had D told him about the lack of space. That could not possibly be true, and Dahal must have known it was not true. According to D.W.2 Vohora, Dahal in 1978 supervised Alfi's activities on the order of Kwast when Kwast went on leave. Dahal worked at Alfi for more than a month and must have E known about Alfi's accommodation capacity. According to D.W.1 Kellner, D.W.2 Vohora and D.W.4 Talib, there was ample space at Alfi for the installation of the two pieces of machinery. Indeed according to D.W.4 Talib, 12 such machines could be installed at Alfi premises. In fact those two pieces of machinery were specifically ordered by Alfi for Alfi, but were diverted to Themi by F Kwast. According to Dahal, he expected a net profit of shs. 100,000 per month if the two machines worked full capacity, enabling him to pay off the machines within a period of a year or so.

When Kellner came to know of this Agreement he was certain that it was a conspiracy between G Kwast and Themi to defraud Alfi and he took prompt steps to cancel it.

Taking into consideration all the evidence and circumstances and the contents of the Agreement we think that it was highly probable that Dahal and Kwast had conspired together to defraud Alfi. H

On the issue of uncertainty, in the Agreement, no price for the machinery was mentioned. In fact Mr. Ismail for Themi conceded that in the Agreement no price was mentioned nor was there a method of ascertaining or calculating such price. He however submitted that the surrounding I circumstances should be looked at.

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MUSTAFA JA

He contended, that according to Dahal, both Alfi and Themi knew the price and there was a provision in the A Agreement about how the price was to be paid, that is by sale of the manufactured goods to Alfi. Nevertheless the fact remains that no price has emerged, and if Alfi were to sue Themi for the price of the machinery, it would not be able to do so, as no price has been fixed. It is clear that the price was to be arrived at by mutual negotiations B between Themi and Alfi, which means that the price has still to be agreed. Price is a fundamental matter in an agreement of sale such as the one under consideration and as there was no agreed price there was no agreement, see Courtney & Fairbairn Ltd. v Tolaini Bros (Hotels) Ltd [1975] 1 All ER 716. In terms of section 29 of the C Law of Contract Cap 433 of the Laws the Agreement is void for uncertainty.

In our view Alfi could not appropriate the sum of shs. 1000,000 to the raw materials account when it was paid for the machinery. That sum either goes to the machinery account or is to be returned to Themi. Since however Alfi D had already credited that sum to the raw materials account, perhaps Alfi and Themi could settle the matter between themselves amicably. In any event, Alfi's attempt to appropriate the sum of shs. 100,000 to the raw materials account was wrong. E

We are satisfied that the Agreement was unenforceable and void on the ground:

(1) That it was fraudulent, as a result of a conspiracy between Kwast and Themi.

(2) That it was uncertain, as no price had been agreed. F

We are aware that to establish fraud a high degree of proof is required. In this case we think, on the evidence, that it was most probable that fraud was committed against Alfi by both Kwast and Themi. G

There was no basis for the award of damages to Themi. Even if the Agreement had been enforceable, there was no legal obligation on Alfi to supply raw materials to Themi. No such provision exists in the agreement. At the most Alfi has been supplying such raw materials to Themi, but clearly it was a voluntary act and imported no legal H obligation. The claim by Themi for damages fails.

In the result we allow the appeal. We hold that the agreement is void and unenforceable. We set aside the judgment and decree of the High Court in favour of Themi Industries and Distribution Agency I

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Ltd. and substitute therefore an order dismissing the claim. We allow costs to Alfi East Africa Ltd. A both here and below.

We order that since the record of appeal prepared by Alfi was unsatisfactory in that some important documents and certain lines on some pages were missing, no costs be allowed Alfi concerning the preparation of the record of appeal. B

Appeal allowed

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C

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v NURU MASUD MGAWE 1984 TLR 266 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Mustafa JJA, Kisanga JJA and Omar JJA

February 21, 1986

CRIMINAL APPEAL 51 OF 1984 D

Flynote

Criminal Practice and Procedure - Withdrawal of prosecution under s. 86(a) Criminal Procedure Code - Withdrawal by public prosecutor - Whether consent of court to withdrawal necessary. E

-Headnote

The respondent was charged in court on 15.12.81 and on 12.8.83 the public prosecutor stated that he was unable to trace the police file and applied to withdraw the charge under s.86(a) of the Criminal Procedure Code. The trial magistrate refused his consent to such withdrawal and dismissed the case F under s.201 of the Criminal Procedure Code and dismissed the accused.

On appeal to the high court the learned judge held that the trial magistrate had power to dismiss the charge and acquit the accused under s. 205 not under s. 201 of the Criminal Procedure Code but that the error was curable. G

On further appeal it was argued before the Court of Appeal that withdrawal of a charge by a public prosecutor under s. 86(a) does not need consent of the trial court. H

Held: (i) According to section 86(a) a public prosecutor is entitled as of right, on the instructions of the Director of Public Prosecutions, to withdraw from the prosecution of any person;

(ii) the provisions in sections 201, 202, 205 or 198 of the criminal Procedure Code have nothing to I do with the provisions in section 86 of the Criminal Procedure Code.

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MUSTAFA JA

Case Information

A Order accordingly

No case referred to.

[zJDz]Judgment

B Mustafa, J.A. delivered the following judgment of the court: This is an appeal by the Republic. In the Magistrate's Court the respondent herein Nuru Masud Mgawe was charged with causing death through dangerous driving contrary to sections 40(1) and 63(2)(a) of the Road Traffic Act No. 30 of 1973.

C The commencement of the trial was inordinately delayed, mainly because the prosecution was unready or without its file. The respondent was charged in Court on 15.12.81, and on 12.8.83 the Public Prosecutor stated that he was unable to trace the Police file and applied to withdraw the charge under section 86(a) of the Criminal Procedure Code Cap. 20 of the Laws. The Magistrate in D his ruling stated inter alia "I object to the prosecution's prayer of withdrawal under Section 86(a) of Criminal Procedure Code and dismiss the case under section 201 of Criminal Procedure Code and discharge the accused".

E The Republic appealed against that order to the High Court by way of revision. The Judge (Bahati, J.) dealt with the matter in great detail and referred to Sections 198, 202 and 205 of the Criminal Procedure Code as well. He also referred to a number of decisions of the High Court, which seem to be in conflict. In the result the Judge held that the Magistrate had power to dismiss the F charge and acquit the accused under section 205 of the Criminal Procedure Code, not under section 201 of Criminal Procedure Code. He held that the error is curable and he upheld the Magistrate's order.

With great respect to the trial Magistrate, the learned Judge and Mr. Kapinga who appeared for the G respondent before us, the interpretation of section 86 Criminal Procedure Code is a comparatively simple matter. It seems to us that both the courts below confused the issue of withdrawal from prosecution by the Republic with applications for adjournment, and indeed there are passages in the H judgments below which equate applications for withdrawal with adjournment applications.

Section 86 of Criminal Procedure Code reads:

In any trial before a Subordinate Court any public prosecutor may, with the consent of the court or on the I instructions of the Director of Public Prosecutions, at any time before judgment

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MUSTAFA JA

is pronounced, withdraw from the prosecution of any person, and upon such withdrawal: A

(a) if it is made before the accused person is called upon to make the defence, he shall be discharged, but such discharge shall not operate as a bar to subsequent proceedings against him on account of the same facts. B

(b) if it is made after the accused person is called upon to make his defence, he shall be acquitted.

Section 80A gives the Director of Public Prosecutions powers to discontinue criminal proceedings at C any stage before judgment, and such powers are exercisable by him in person or any officer subordinate to him acting under his general or special instructions.

Section 2 of Criminal Procedure Code defines a public prosecuter as any person appointed under section 84, and the Attorney General and other judicial officers. D

Section 84 relates to the appointment of Public Prosecutors.

In the Magistrate's Court a Public Prosecutor appeared for the Republic. E

According to section 86(a) a Public Prosecutor is entitled as of right, on the instructions of the Director of Public Prosecutions to withdraw from the prosecution of any person. The consent of the court is needed only for instance in the case of a Private Prosecutor.

The provisions in sections 201, 202, 205 or 198 Criminal Procedure Code have nothing to do with the F provisions in section 86 of the Criminal Procedure Code.

It is clear that the trial magistrate erred in refusing the application to withdraw by the Public Prosecutor, and the judge was also in error in upholding the magistrate's order to acquit the respondent in the circumstances. G

We allow the appeal of the Republic, set aside the order of the magistrate dismissing the case and discharging the accused (i.e. respondent) and substitute therefor an order allowing the application by the Public Prosecutor to withdraw from the prosecution under section 86 of the Criminal H Procedure Code Cap. 20.

Order accordingly. I

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[zRPz]CELESTINE KAMTAMBULA KAZIBA v REPUBLIC 1984 TLR 269 (HC)

Court High Court of Tanzania - Mtwara

Judge Msumi J

March 9, 1985

B CRIMINAL APPEAL 78 OF 1982

Flynote

Criminal Practice and Procedure - Charges - Impersonating a Public Officer contrary to s.100 of the Penal Code - Whether conviction maintainable where accused was originally charged under a wrong sub-section.

-Headnote

C The appellant presented himself and enrolled for a course at Mahiwa Party Ideological College in the name of Captain C.B.E. Mziba of Tanzania Peoples' Defence Forces. It was later discovered that D he was not an employee nor officer of the Tanzania People's Defence Forces. He was charged and convicted of impersonating a public officer contrary to s.100 (1) of the Penal Code. On appeal against conviction:

E Held: (i) The provisions of sub-section (1) comes into play where accused purports to discharge duty, either by doing an act or attend in any place, which he is required to perform in his assumed official post;

(ii) in the instant case the appellant ought to have been charged under subsection (2) as there F wa no duty imposed on him to enroll himself with the college as a result of his being an army captain;

(iii) in the instant case the appellant though charged under the wrong subsection fully understood the kernel of the case against him; therefore, the irregularity is curable under section 346 of the criminal Procedure Code in which case the conviction is taken to have been entered under G subsection (2) of s.100.

Case Information

Appeal dismissed.

H No cases referred to.

[zJDz]Judgment

Msumi, J.: After he was convicted of impersonating Public Officer contrary to section 100(1) of the Penal Code, appellant was sentenced to two years imprisonment which was subject to confirmation I by this court. Appellant has filed this appeal to challenge the said conviction and sentence.

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MSUMI J

The factual aspect of the prosecution's allegation leaves no room for any rational controversy. On A the material days appellant presented himself before the principal of Mahiwa Party Ideological College as one Captain C.B.E. Mziba of Tanzania People's Defence Forces. And by virtue of the purported public office, appellant enrolled himself as a long course student of the college. It, B however, transpired that in fact appellant was not employed as public officer let alone being a army captain. As I said, these facts are supported by cogent evidence. Nothing has been adduced by the appellant in his defence which has the effect of creating reasonable doubt against this allegation. However, the same expression of satisfaction is not maintainable when it comes to the legal aspect C of the case.

As an attempt to convey my uneasiness effectively let me quote fully the provisions of section 100 of the Penal Code. It reads:

100. Any person who- D

(1) personates any person employed in public service on an occasion when the later is required to do any act or a attend in any place by virtue of his employment; or E

(2) falsely represents himself to be a person employed in the Public service, and assumes to do any act or to attend in any place for the purpose of doing any act by virtue of such employment, is guilty of a misdemeanour.

When admitting this appeal my brother Samatta, J., queried, inter alia, whether in drafting the F charge the public prosecutor intended to use subsection (2) of the section. With respect, the conviction of the appellant under subsection (1) was clearly prompted by the misconception of these two subsections. The provisions of subsection (1) only come into play where accused G purports to discharge duty, either by doing an act or attend in any place, which he is required to perform in his assumed official post. In the instant case it is true that appellant enrolled himself as Captain Mziba but he was not required or duty - bound to enroll himself with the college as a result of his being an army captain. There was no duty imposed on him as such to enroll himself with the H college. He ought to have ben charged under the provisions of subsection (2). For it is clear that appellant assumed to attend the course by virtue of his false representation that he was an army captain. As a general guidance, magistrates are advised that whenever they are called upon to I adjudicate a case preferred under either of the subsections of section

A 100 of the Penal Code, they should particularly be on guard against the common error of mixing up these provisions. For, depending on the particular circumstances of the case, such error may be fatal to the conviction. Quite happily, the same cannot be said in this case. Though charged under B the wrong subsection, appellant fully understood the kernel of the case against him. The situation is curable under section 346 of the Criminal Procedure Code. Thus the conviction is taken to have been entered under subsection (2) of section 100.

C The sentence of two years imprisonment is the maximum provided by the law. I don't think that it is such a bad impersonation case so as to warrant the imposition of the maximum penalty. Appellant's youth age and the fact that he was a first offender ought to have been taken as factors mitigating the intended sentence. Unfortunately any reduction of this sentence at this hour will be D of no practical utility. Appellant has already completed serving the sentence. This appeal is therefore dismissed and the sentence of two years imprisonment is hereby confirmed.

Appeal dismissed.

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[zRPz]REPUBLIC v MABULA s/o MAGANA 1984 TLR 271 (HC)

Court High Court of Tanzania - Mwanza
Judge Katiti J

June 9, 1984

F CRIMINAL REVISION 41 OF 1983

Flynote

G Minimum Sentences Act, 1972 - Compensation Order - Procedure of recovery of compensation - S.7(1).

-Headnote

The accused was charged with and convicted of cattle theft. In addition to a sentence of five years imprisonment he was ordered to pay shs. 2000/= compensation to the complainant or distress in H default. On revision the high court considered the propriety of the distress in default order.

Held: The recovery of compensation as ordered under section 7(1) of the Minimum Sentences Act, 1972 is not by distress in default but by presenting or filing an authenticated copy of the compensation order in the District Court having jurisdiction over the area for its execution in the I same manner as if it were a decree passed by such

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KATITI J

court under the provisions of the Civil Procedure Code, 1966. A

Case Information

Order accordingly.

No case referred to.

[zJDz]Judgment

Katiti, J.: Mabula s/o Magana was charged with Cattle Theft c/s 268 of the Penal Code with two B others, and was finally found guilty and convicted as charged, and sentenced to five years imprisonment under section 5(c) of the Minimum Sentences Act 1972. The Second and Third accused persons were acquitted. Following on heels was a compensation order that runs as C follows:-

Order:Accused should pay Shs.2,000/= compensation to the complainant (P.W.1) or distress in default. D

What has attracted our attention is the recovery aspect of the compensation ordered, as the sentence is according to law and a mandatory one. What is interesting is compensation order that is to the effect that distress be levied in default of payment of the said compensation. I have only to E recall that cattle theft is an offence scheduled under the Minimum Sentences Act 1972. And where under the same Minimum Sentences Act 1972 a trial court orders payment of compensation where circumstances so dictate, it has so to do under the provisions of section 7(1) of the Minimum Sentences Act 1972. The recovery of compensation as ordered under Section 7(1) of the Minimum F Sentences Act 1972 is not by distress in default, but by presenting, or filing an authenticated copy of the compensation order, in the District Court, having jurisdiction over the area, for execution of the same in the same or like manner as if it were a decree passed by such Court under the provisions G of Civil Procedure Code 1966. It is therefore very clear that the compensation order that distress be levied in default of payment was bad in law. Accordingly the default distress aspect of the order is hereby set aside. H

Order accordingly.

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[zRPz]REPUBLIC v JOHN s/o GILIED 1984 TLR 273 (HC)

Court High Court of Tanzania - Mwanza
Judge Katiti J

My 4, 1984
CRIMINAL REVISION 68 OF 1983
Flynote
B Criminal Practice and Procedure - Sentencing - Guiding principles when sentencing a child or a young person - Children and Young Persons Ordinance, s. 22(2).
-Headnote
C The accused aged 15 years, was convicted of causing grievous bodily harm. The District Ccourt sentenced him to nine months' imprisonment plus twelve strokes corporal punishment. The case file was called for revision on the propriety of the imprisonment sentence.
D Held: Before a trial magistrate sentences a young person to any term of imprisonment he should, by application of his judicial mind and for sound recorded reasons, have eliminated other methods of legally dealing with such young person as unsuitable.

Case Information
E Order accordingly.
No case referred to.
F S. Kidela, for the Republic.
[zJDz]Judgment
Katiti, J.: The accused/convict John s/o Gilied, having been convicted as charged the trial Magistrate proceeded to sentence him. The trial Magistrate's preamble to sentence speaks loudly G as hereunder:

SENTENCE

An accused is a young one aged 15 years old as per medical proof the wound he inflicted on the skull of the H complainant showed in fact a maim for life. Accused is to face (nine) months imprisonment, plus 12 strokes corporal punishment so as to shock the mind of the accused not to repeat that kind of offence, and make an example for other many cruel youths, who are in mass prevailing in this District. The right of Appeal I explained.
1984 TLR p274
KATITI J
SGD: D.M. Mahizi A
District Magistrate
18/11/1983

The said John Giled had hardly seen the gates of the prison, when he was sent back by the Prison authorities, reminding the trial court of the provisions of section 22, of the Children and Young B Persons Ordinance Cap. 13. It is for the above reason that this case has come to us for revision.

As the learned State Attorney Mr. Kidela submitted, certified as it was that the accused was aged fifteen years of age, then obviously the trial magistrate should have been guided by the provisions C of the Children and Young Persons Ordinance Cap. 13, generally, and the provisions of s.22(2) of the same chapter in particular. This sub-section has the following to say, and I quote: D

Section 22 (2). No young person shall be sentenced to imprisonment, unless the court considers that, none of the other methods in which the case may be legally dealt with, by the provisions of this or any other Ordinance, is suitable.

It is easy to discern that the provisions of section 22 (2) of the Children and Young Persons E Ordinance Cap. 13 do not favour the imprisonment of young persons, unless imprisonment is in the circumstances of the case, the inevitable last resort. It follows therefore, that before a trial magistrate, sentences a young person to any term of imprisonment, he should by application of his F judicial mind and for sound recorded reasons, have eliminated other methods of legally dealing with such young person, as unsuitable.

Apart from sentencing a young person, to a term of imprisonment which should be considered as a G last resort, the following methods of dealing with a young person, upon conviction, give a trial magistrate many options, from which by using his judicial approach, he may choose one or more methods to deal with the young person offender.

The trial magistrate may: H

(a) Impose corporal punishment not exceeding twelve strokes - See Section (6) and 8 (2), of the Corporal Punishment Ordinance Cap. 17. I

1984 TLR p275

KATITI J

A (b) Impose fine, and or order payment of compensation or even costs to be paid by the parent, or guardian, provided the said parent, or guardian, has been given opportunity of being heard on the same - see section 21 of Children and Young Persons Ordinance Cap. 13.

B (c) May place such convicted young person on probation - see section 18 of the Children and Young Persons Ordinance Cap. 13.

C (d) May commit such convicted young person to an Approved School where the Manager of such Approved School has informed the court that, there is a vacancy - see section 24 of Cap. 13.

D (e) The District Court may in addition, or in the alternative.

(i) Discharge the said convicted young person un-conditionally or conditionally.

(ii) Repatriate him/her at the expense of Government to his/her home, or District of origin, where E and when circumstances so warrant.

(iii) Hand such convicted young person to the care of a fit person, or institution named in the order, subject to such person's or institution's willingness and readiness to undertake such care - See F section 23 of Cap. 13.

In this case, the trial court's choice of imprisonment was not judicially reached, despite the onesided sentiments that the trial magistrate did demonstrate. Grievous bodily harm may have been suffered, G and indeed, this was the trial magistrate's conclusion. Be it as it may, this did not disqualify the said trial magistrate, from considering what was in the interests of the accused, nor make him succumb to sentiments that dictated disobedience to the law as

H above shown. I do agree that the complainant suffered grievous harm, but the trial magistrate should not have been oblivious to the fact that the accused was also a first offender. And the said accused being a young person, the same trial magistrate, in coming to his decision to imprison him, he should have shown, why or how in view of the provisions of section 22 (2) of the Children and I Young Persons Ordinance, Cap. 13, the other methods of dealing with him

were unsuitable. This he did not. Having considered the case generally, I am of the view that A imprisonment was not necessarily an inevitable course of action. I therefore set aside the imprisonment order, but confirm the corporal punishment awarded. The process to be initiated for the execution of such sentence, subject of course to the provisions of Section 15 (1) of Corporal B Punishment Ordinance Cap. 17, i.e., the doctor has to certify the accused's physical fitness to undergo the same.

Order accordingly. C

1984 TLR p276

D

[zRPz]MSAFIRI s/o KULINDWA v REPUBLIC 1984 TLR 276 (HC)

Court High Court of Tanzania - Mwanza
Judge Katiti J

May 4, 1984
CRIMINAL APPEAL 125 OF 1983
Flynote
Criminal Practice and Procedure - Charges - Obtaining goods by false pretences - No averment that the pretence was made with intent to defraud - Effect of absence of such averment. E
-Headnote
The appellant was convicted on four counts of obtaining goods by false pretences. The charges did not aver that the pretences were made with intent to defraud. On appeal it was argued whether or F not absence of words "with intent to defraud" in a charge are fatal to conviction.

Held: (i) An intent to defraud is an essential ingredient of the offence of obtaining by false pretences and it is therefore essential that such intent to defraud must be alleged in the particulars of the G offence;

(ii) a charge of obtaining by false pretences which does not include an averment that the pretence was made with intent to defraud is a charge which discloses no offence at law. H

Case Information

Appeal allowed.

Cases referred to:

1. Terrah Mukindia v.R. [1966] E.A. 425 I
2. Edward Opiyo s/o Anguro v R. [1968] HCD No. 55

1984 TLR p277

KATITI J

A W.K. Butambala, for the appellant

Swai, for the Republic

[zJDz]Judgment

Katiti, J.: Msafiri s/o Kulindwa, herein the appellant, who was charged severally on counts (1) (2), with 4th B accused on count No. 3, on 4th count with 3rd accused, and on 5th count with 2nd accused, as first accused, was his own witness to his conviction as charged. The appellant, to his chagrin saw his co-accuseds walk out of the court scot-free on acquittal. Aggrieved, the appellant has appealed against conviction.

C Representing the appellant was a Mwanza based advocate Mr. Butambala, while the Republic was represented by a learned State Attorney Mr. Swai. The two counsels demonstrated their professional mettle in their arguments whether or not, the appellant, who was alleged to have uttered the alleged false D routing slips to RTC shop managers, falsely pretending the same had come from the Sales Managers, but paid for the goods listed thereon, committed the offence under the provisions of section 302 of the Penal Code Cap. 16 of the Laws. The two counsels argued with volcanic force of assumption that, intent to E defraud, as an element of the offence under section 302 of the Penal Code Cap. 16 was incorporated, as it should have been in the charges, the appellant who was unrepresented, was facing at his trial.

I have with unmitigated anxiety first scrutinised the charged counts - all the counts-whose sample F representative phraseology of their particulars of offence, runs thus, inter alia, and I quote:

... did present a false Routing Slip to the Shop Manager RTC Shop No. 12, pretending that the routing slip was issued G to him by RTC District Sales Manager to buy I bag of sugar, (Ilula soap, khangas) whereas infact, it was not true.

The above particulars juxtaposed with the wording of section 302 of the Penal Code, will show or reveal, that, the words "with intent to defraud", that virtually control section 302 of the Penal Code, are H significantly absent in the particulars of offences charged, and above reproduced.

What then, is the effect of this omission? I would imagine that no conjurations or incantations need be resorted to, to realise that the offence under the provisions of section 302 of the Penal

Code Cap. 16 - "an I intent to defraud" is an essential ingredient of the offence of obtaining by false pretences, and it is therefore essential

1984 TLR p278

KATITI J

that such intent to defraud must be alleged, or averred in the particulars of offence in a count charging that A very offence. It follows therefore, that where the charge falls under section 302 of the Penal Code Cap. 16 an omission to incorporate, or allege an intent to defraud in the particulars of that offence, renders the said charge defective. B

Whether or not such defect is curable, which is a question on heels I can do no better than apply the wisdom in the holding in a similar case, Terrah Mukindia v R. [1966] E.A. 425 at page 429, where it was held thus:

Our view is that a charge of false pretences which does not include an averment that, the pretence was made with C intent to defraud is a charge, which discloses no offence at law, and is not merely an irregular or defective charge, which can be put right by application of section 382 of the Criminal Procedure Code. D

While I make necessary concession that, the above case did obtain in Kenya, and has persuasive value, our legal position on the same is not different. I derive comfort in so boldly saying from the case - Edward E Opiyo s/o Anguro v. R. [1968] H.C.D. No. 55, in which the High Court quashing the relevant conviction, had this to hold, and I quote:

... and absence of the words "with intent to defraud" are fatal to conviction, since the accused may not have F understood the charge against him. The false pretence must be set out in the charge with sufficient certainty.

From the above, it is very clear that, the charges did not contain averment that, there was intent to defraud, G and as such, no offences, or offence known to section 302, or any other section in the Penal Code were charged. That means, the convictions were unfortunately misconvieved. The same said convictions are hereby and therefore quashed, and sentences set aside. The appellant to be set free, unless he has H otherwise offended the law.

Appeal allowed. I

1984 TLR p279

A

[zRPz]MWITA MAGORE v REPUBLIC 1984 TLR 279 (HC)

Court High Court of Tanzania - Mwanza

Judge Munyera J

October 28, 1983

CRIMINAL APPEAL 139 OF 1983

Flynote

B Criminal Practice and Procedure - Cognate offences - Whether causing grievous harm can be substituted for robbery.

-Headnote

The appellant was charged with robbery. The trial magistrate found that the offence of robbery was not C established. He was, however, satisfied that the appellant caused grievous bodily harm to the complainant and convicted him accordingly. On appeal the learned judge considered whether or not it was proper to substitute a conviction of causing grievous harm for that of robbery.

D Held: (i) A conviction of causing grievous harm cannot be substituted for that of robbery, it not being a cognate minor offence to robbery;

(ii) a cognate minor offence is one that forms part of a series of lesser offences which must be E committed in order to complete the major one;

(iii) two minor offences to robbery are assault and stealing.

Case Information

Order accordingly.

F No case referred to.

[zJDz]Judgment

Munyera, J.: The appellant was the second accused before Tarime District Court. He was charged jointly with another (1st accused) for robbery. It was stated that on 27/10/82 the complainant, one Joseph G Nchagwa (PW 1), was returning to his village Kwitinyo, from a cattle auction. He was driving his Toyota Pick-up MZF 124. He passed by his shamba. He saw a herd of cattle grazing in the shamba. He parked his vehicle somewhere. He approached the herdsmen who happened to be the appellant and his co-accused. H He protested to them that their cattle were destroying his crops. The two men, armed with pangas, rushed to him. The first accused, with the aid of the appellant cut the complainant with a panga on his back. The latter fell down. The appellant put his hand in the complainant's pockets and made away with I Shs.12,000/= cash and the ignation key. A passery-by, Mchuma Mwita (PW 3) helped the injured complainant. Finally the appellant (and his co-

accused) was arrested and charged. In his defence he (like his co- accused) denied that he assaulted and A robbed the complainant. The learned trial magistrate found that the violence visited upon the complainant was not for the purpose of stealing. He acquitted both of them of robbery but convicted them of causing grievous harm c/s 225. He sentenced the appellant to 2 years imprisonment, and released his B co-accused on a 3 year probation. Both of them were ordered to pay compensation of Shs.500/= each to the complainant. Hence this appeal.

There was ample evidence to establish that it was the appellant (and his co-accused) who injured the complainant. The question is whether conviction of causing grievous harm could be substituted for C robbery. Without beating about the bush I would say such a substitution is not possible for simple reason that causing grievous harm is not a cognate minor offence to robbery. A cognate minor offence is the one that forms part of a series of lesser offences which must be committed in order to complete the major one. D Thus in order to commit robbery one must commit two minor offences, assault and stealing. So when a person is tried for robbery assault and stealing are necessarily the subject of the trial and it shall not be unlawful to

substitute conviction of either of them for robbery. But one doesn't have to cause grievous E harm in order to commit robbery. It is not a cognate minor offence to robbery and must be specifically charged. In this case it was not included in the charge and was not the subject of the trial. The appellant was unaware of it and its substitution was bad in law. I set aside the conviction of grievous harm and F substitute hereof the one of assault c/s 240. I set aside the sentence of 2 years and substitute thereof the one of 9 months' imprisonment.
Order accordingly. G
1984 TLR p280

[zRPz]SAIDI HATIBU v REPUBLIC 1984 TLR 280 (HC)

Court High Court of Tanzania - Mtwara
Judge Samatta J

August 24, 1983
CRIMINAL APPEAL 66 OF 1980 H
Flynote
Evidence - Confessions - Plea of guilty of a co-accused implicating the other - Whether a confession which can be taken into consideration against that other person - S.33(1) Evidence Act,1967. I
1984 TLR p281
SAMATTA J
A Evidence - Identification - Appellant identified in a bush from a distance of about one hundred yards - Whether safe to act on such evidence.
-Headnote
The appellant was convicted of cattle theft. The trial magistrate relied on two pieces of evidence to convict B the appellant. He relied on a plea of guilty of a co-accused which implicated the appellant and an identification evidence of a witness who said that he saw the appellant and his co-accused in the bush from a distance of about one hundred yards driving some head of cattle. The High Court considered C whether or not the two pieces of evidence could support conviction.
Held: (i) A plea of guilty is a confession of fact and may be made use of as provided for in s.33(1) of the Evidence Act, 1967 provided it is proved;
D (ii) the use of the word "proved" in s.33(1) of the Evidence Act would tend to suggest that evidence must be adduced to establish that the plea was made;
(iii) in this case it was not permissible to invoke the provisions of s.33(1) of the Evidence Act against E the appellant because the plea of guilty of the co-accused was not proved;
(iv) it was unsafe for the trial magistrate to have accepted the identification evidence because the distance was quite long and the fact that the man was in a bush.
Case Information

F Appeal allowed

No case referred to.

G L.K.N. Kaduri, for the Republic.

[zJDz]Judgment

Samatta, J.: This is an appeal from a decision of the Dstrict Court of Masasi district whereby the appellant, SAIDI HATIBU, was convicted of cattle theft, contrary to s.268 of the Penal Code, and was sentenced to a H term of five years' imprisonment. The appellant was jointly charged with one Issa Abdallah, who was convicted upon his own plea of guilty which was couched in the following terms: "It is true that I stole 9 cows and 2 bulls [of] the value of shs.17,600/=. I was together with Saidi Hatibu who is [the] second accused in this case". The trial of the appellant commenced after Issa Abdallah had been sentenced. The I latter, however, was

not called as a witness by the prosecution, and no evidence was adduced at the trial to prove that, in his A plea of guilty, Issa Abdallah had implicated the appellant.

The evidence at the trial conclusively established, I think, that, on the night of March 2/3 1980, eleven head of cattle belonging to one Mr. Mauruge Alfani were stolen. The only evidence given at the trial B touching upon the appellant was that of PW3, Mr. Michael Hassani, who testified to the effect that, on the morning of March 3, 1989, while he was at his shamba, he saw the appellant and his co-accused in the bush driving some head of cattle. The witness said that he saw the appellant at a distance of about one C hundred yards. The learned trial magistrate accepted this evidence in its entirety. In arriving at his decision he took into consideration the plea of guilty which the appellant's co-accused had made. He rejected the appellant's testimony which amounted to no more than a general denial of the charge laid at his door. D

Mr. Kaduri, counsel for the Republic, declined to support the learned trial magistrate's decision. He conceded that the quality and quantity of the evidence in the scale against the appellant did not warrant the conclusion the learned magistrate arrived at. With respect, I approve this concession. Although Mr. E Michael Hassani - according to his evidence - knew the appellant before March 3, 19890, it was, in my opinion, unsafe for the learned trial magistrate to have accepted the witness alleged identification of the appellant. According to the witness, he saw the appellant at a distance of about one hundred yards. This F is quite a long distance, and when the fact that the man was in a bush is also taken into consideration, I think the possibility of error cannot safely be excluded. In reaching his impugned decision, the learned magistrate, as already pointed out, also acted on the appellant's co-accused's plea of guilty. With due respect to the learned magistrate, I think he erred in law in doing so. But why am I of this view? This G question I will endeavour to answer. It is perfectly correct to say that a plea of guilty is a confession of fact. The rules of evidence regarding confessions are, therefore, applicable to it. Thus, for example, it may H be made use of as provided for in s.33(1) of the Evidence Act, 1967, which I proceed to read:

When two or more persons are being tried jointly for the same offence, or for different offences arising out of the same transaction, and a confession of the offence or offences charged made by one of those persons affecting himself and I some other
1984 TLR p283
SAMATTA J
A of those persons is proved, the court may take that confession into consideration against that other person.
It is elementary law, I think, that an arraignment does not form part of the trial. The need for a trial arises B only if the accused has joined issue with the Republic or the prosecutor (where the prosecution is a private one) by pleading not guilty. Where, therefore, the accused pleads guilty and is convicted, as happened in the present case, he cannot be said to be on trial. If the accused is not on trial, how can he possibly be said to be jointly tried with his co-accused?
C It was note Evidence Act against the appellant.
It is tempting to part with the case there, but I think it proper to add one word. It is doubtful that a plea of guilty made by the accused can be taken into consideration against his co-accused without the same being D proved during the trial by the testimony of a person who was present in court and who heard the plea being made. The use of the word "proved" in s.33(1) of the Evidence Act would tend to suggest that evidence must be adduced to establish that the plea was made. This would appear to be so even if the magistrate who took down the pleas is the same who later tried the co-accused. Of course the testimony E would rarely be necessary, because ordinarily the prosecution would call the accused as their witness against his co-accused. For reasons which are not apparent on the record of the case, the prosecution did not call the appellant's co-accused as their witness. I hope it is not because the prosecutor thought he F could not in law do so. If that was the reason, I must hasten to point out that the belief was unfounded in law. It is a correct proposition of law, of course, that an accused is not a competent prosecution witness; the prosecution cannot call one co-accused to give evidence against another. But once the proceedings G have been finalised, it is competent for the prosecution to call the accused as their witness against the remaining accused person/s. There is no objection in justice or reason to that being done, because the accused is then no longer in the proceedings.
H It is not without respect that, for the reasons I have endeavoured to give, I am unable to persuade myself to share the learned trial magistrate's opinion that the appellant's alleged guilt was established beyond reasonable doubt.
I Appeal allowed.
1984 TLR p284
A
[zRPz]JONES NDUNGURU v REPUBLIC 1984 TLR 284 (HC)

Court High Court of Tanzania - Mtwara
Judge Samatta J

June 20, 1984
CRIMINAL APPEAL 80 of 1981
Flynote
Evidence - Admissibility - Telegram to establish truthfulness of contents thereof - Whether admissible in evidence - B S.61(1) Evidence Act, 1967.
Evidence - Burden of proof - Proof whether or not appellant was away on official duty - Burden on prosecution. C
-Headnote
The appellant was convicted by a District Court on a charge of obtaining money by false pretences. Without informing his immediate boss in Lindi, but after sending a telegram to the headquarters of his Corporation the appellant went to Dar es Salaam allegedly on official duty. On going back to his station he D claimed and was paid shs.2,542/50 being a refund of money he had used to buy a Lindi - Dar es Salaam return ticket and for subsistence allowance. The prosecution argued that the journey the appellant made was not official and, therefore, he obtained the money by false pretences. To back its argument the prosecution produced a telegram allegedly from the Corporation's headquarters the contents of which E showed that the appellant did not go to Dar es Salaam on official duty. The telegram was admitted in evidence. On appeal:
Held:(i) The reception in evidence of the telegram as establishing the truthfulness of the contents thereof F sinned against the Rule against Hearsay as formulated in s.62(1) of the Evidence Act, 1967;

(ii) there was no admissible evidence against the appellant to prove that while he was in Dar es Salaam he did nothing official; G

(iii) the burden of proving whether or not the appellant was in Dar es Salaam on official duty was on the prosecution.
Case Information
Appeal allowed H
Case referred to:

1. Re London and Globe Finance Corporation [1903] 1 Ch. 728.

[zJDz]Judgment
Samatta, J.: On January 29, 1981, the appellant was charged before the District Court of Lindi district with I obtaining
1984 TLR p285
SAMATTA J
A money by false pretences, contrary to s. 302 of the Penal Code. The particulars of offence were couched in the following language:

... Jones Ndunguru ... on the 21st day of January, 1981, at Gapex Mtama, within the District and Region of Lindi, with B intent to defraud. .. obtained from Betrisia Nongolo shs.2,542/50 by falsely pretending that he went on official journey to Dar es Salaam and thus he was claiming (sic) Night Allowance, while the journey was not official.

C The particulars were, with respect, not a model of elegance or accuracy. Be that as it may, the prosecutor should have used the words 'entitled to' instead of the word 'claiming'. I do not think, however, that the error - for that is what it was - materially prejudiced the appellant in his defence. It is an D error which, therefore, is curable under s. 346 of the Criminal Procedure Code. At the end of the trial the appellant was convicted "as charged" and was sentenced to a term of three years' imprisonment. He thinks the decision robbed him of justice; hence the appeal now at the Bar.

E The evidence which was laid in the scales demonstrated, I think, the following facts. The appellant was employed by the General Agricultural Products Export Corporation, hereinafter referred to by its acronym - GAPEX, as a depot manager and was, at the material time, stationed at Mtama. On January 3, 1981, he sent F a telegraph (Exh.DI) to the General Manager of the Corporation worded as follows, in Swahili:

NAKUJA HUKO HEAD OFFICE BILA KIBALI CHA MENEJA WA TAWI LA LINDI TUA MATATIZO YA KIKAZI.

G He received no reply to this message. Six days later he left for Dar es Salaam. After spending some days there he came back, and on January 21, he resumed duty at Mtama. Before leaving for Dar es Salaam the appellant did not obtain from his immediate boss - the Regional Manager at Lindi - any permission to H make the trip. On his return on January 21 to be more precise, the appellant claimed and was paid the sum of shs.2,542/50 being a refund of money he had used to buy a Lindi - Dar es Salaam return ticket, and for subsistence allowance. It was the case for the prosecutor that the journey the appellant made was not I official and therefore, GAPEX owed him nothing. The appellant, on the other hand, asserted that

the journey was official. He claimed that while in Dar es Salaam he had official transactions with the A Personnel Manager.

The learned trial magistrate, having reviewed the evidence before him, was of the settled view that the prosecutor's assertion was correct and the appellant's was unfounded. He accordingly convicted the appellant. Mr. Sengwaji, counsel for the Republic, declined to support the conviction. He conceded that it B was not conclusively established by the prosecution that the journey in question was not official. In this connection he drew my attention to the meaning given to the word 'official' in the CHAMBER'S TWENTIETH CENTURY DICTIONARY (Revised Edition). There the word is defined as meaning C pertaining to an office; depending on the proper office or authority; done by authority; issued or authorised by a public authority or office; recognised in the pharmacopoeia. With respect, I approve the learned state attorney's concession. It is a noble and well-established principle of law, the change of D which can be affected only through legislation, that, as a general rule, in a criminal case the accused bears no burden to satisfy the court of his innocence, it being the duty of the prosecution to establish his guilt, if any. In the instant case, therefore, the appellant bore no burden to convince the learned trial magistrate E that the journey was official. It was for the prosecution to satisfy him, beyond reasonable doubt, that it was not. To discharge that task the prosecutor put in evidence

- through PW2, the Regional Manager - a telegraph, purporting to have been sent to him by the GAPEX headquarters, worded as follows, in Swahili: F

GAPEX MENIJIMENT DAR ES SALAAM WATHIBITISHA SAFARI YAKE NDUGURU [YAANI MWOMBA RUFAA SASA] KUJA DAR ES SALAAM NA KURUDI MTAMA SIYO YA KIKAZI TUA HAKURUHUSIWA KUJILIPA GHARAMA ZA SAFARI G SHILINGI ELFU MBILI MIA TANO ARUBAINI NA MBILI TUA.

With unfeigned respect to the learned trial magistrate, the reception in evidence of this telegram sinned H against the Rule against Hearsay, as formulated in s. 62(1) of the Evidence Act, 1967. The telegram was hearsay - and therefore inadmissible - because it was relied on testimonially, that is to say, as establishing the truthfulness of the contents thereof. The telegram, the law says, I

A should have been shut out of the case. An officer from the GAPEX headquarters who could state as facts the contents of it should have been called as a witness at the trial. Excluding the telegram from the case, one is left with the evidence of the Regional Manager and the appellant himself (only) on the B question. It was asserted by the prosecutor, and admitted by the appellant, that the latter had not obtained the Regional Manager's permission to make the journey to Dar es Salaam. But would that by itself be sufficient to make the claim which was made by the appellant fraudulent? I think not. To prove the charge laid at the appellant's door it had to be conclusively established that, in making the claim the appellant had C the intent to defraud the GAPEX. How can it be said that he had such an intent if he honestly believed that the headquarters of the corporation had no objection to his making the journey? If the telegram the appellant produced as an exhibit at the trial was in fact never transmitted, what was the difficulty, I ask, D calling a postal official to prove, in rebuttal, that fact? The record of the case provides no answer to this not unimportant question. The prosecutor could have sought the trial court's leave under s.207 of the Criminal Procedure Code to adduce evidence in reply. He did not do so and this court is bound, in the E circumstances, to assume that he accepted the telegram (the appellant produced as an exhibit) as being genuine. The intent to defraud is one of the ingredients of the offence of obtaining money by false pretences, the offence which the appellant was charged with. The Penal Code, which creates the offence, F does not define the term 'to defraud,' but the term was given what has come to be regarded as a classic definition eighty years ago by BUCKLEY, J., (later he became LORD WRENBURY) in Re London and Globe Finance Corporation, [1903] 1 Ch. 728. This is what the learned judge said:

G To deceive is, I apprehend, to induce a man to believe that a thing is true which is false, and which the person practising the deceit knows or believes to be false. To defraud is to deprive by deceit: it is by deceit to induce a man H to act to his injury. More tersely it may be put, that to deceive is by falsehood to induce a state of mind; to defraud is by deceit to induce a course of action.

Upon the evidence on record in the instant case, I cannot see how it can correctly be asserted that the I appellant knew or believed that the journey he had made to Dar es Salaam was unofficial. There was enough (reasonable) doubt in this case to entitle the appellant
1984 TLR p288
SAMATTA J
to an acquittal. It was certainly not proved beyond sane doubt that the journey the appellant made did not A pertain to his office. There was no admissible evidence in the scale against him which proved that, while he was in Dar es Salaam, he did nothing (substantially) official. The case against the appellant could not possibly be established without an officer from the GAPEX headquarters testifying before the court to B that effect.
The appellant according to the charge laid at his door obtained the shs.2,542/50 by false pretences. The term 'false pretence' is given a definition in the Penal Code: s. 301, as amended by s. 13 of the Penal Code (Amendment) Act, 1980. The section reads as follows: C

Any representation made by words, writing or conduct, of a matter of fact or of intention, which representation is false and the person making it knows to be false or does not believe to be true, is false pretence. D

It was for the prosecutor to satisfy the trial court that the appellant knew that his journey was not official or that he did not believe that his assertion that the journey was official was true. I have no hesitation in E stating, as I do, that the prosecutor failed to discharge that duty.
I have sufficiently demonstrated, I hope, why I am of the view that the great axe could not rightly be let to fall on the appellant. The appeal is allowed, the conviction is quashed and the sentence imposed thereon F is set aside. Any consequential order made by the lower court which is inconsistent with the decision I have arrived in this judgment is hereby set aside. Unless his personal liberty is otherwise assailed, the appellant - if he has not already finished serving the sentence I have just set aside - be released from G custody forthwith.
Appeal allowed. H
1984 TLR p289
A
[zRPz]ZULEIKHA BINT AMOUR v CONSTRUCTION ENGINEERING & BUILDERS LTD 1984 TLR 289 (HC)

Court High Court of Tanzania - Zanzibar
Judge Ramadhani CJ

June 6, 1983
CIVIL CASE 25 OF 1982 B
Flynote
Workmen's Compensation Decree - Workmen's Compensation - "Arising out of and in the course of the employment" - Meaning - Workmen's Compensation Decree, s. 6(1).
-Headnote

The plaintiff is the widow of one Issa Bakari Seif, deceased, who was an employee of the defendant. She claimed C the deceased's salary for seven months while he was hospitalized, a gratuity for the 19 months he was in the employment of the defendant and compensation for the death of the deceased. The deceased had met an accident D within the employment premises as he was climbing down some steps to go home after the working hours. He was hospitalized for seven months then he died. The most contentious issue before the court was whether or not the deceased had met the accident and sustained injuries while he was in the course of employment. E

Held: The deceased who sustained injuries while he was leaving the employment premises did sustain such injuries out of and in the course of employment.

Case Information

Judgment for the plaintiff. F

Cases referred to:

1. Hill v Butterley Co. Ltd. [1948] 1 All E.R. 233
2. Campbell v Proud's Engineering Co. Ltd. [1947] 2 All E.R. 97 G
3. Ali Mahdi v Abdulla Mohamed [1961] E.A. 83
4. James Patrick & Co. Proprietary, Ltd. v Sharpe [1954] 3 All E.R. 216.
5. Ogden Industries Pty. Ltd. v Lucas [1969] 1 All E.R. 121 H

[zJDz]Judgment

Ramadhani, C.J.: The plaintiff, Zuleikha Amour Hassan, is the widow of one Issa Bakari Seif, deceased, who was an employee of the defendant. On the other hand the defendant is the Construction Engineers & Builders Ltd. This is a construction company contracted to build the new Post Office at Kijangwani, Zanzibar. I

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RAMADHANI CJ

The plaintiff has stated that the deceased was injured in the course of employment of defendant on 20th A January, 1981. He was admitted at the V.I. Lenin Hospital and ultimately died on 26th July, 1981. The plaintiff has claimed the salary of the deceased for seven months at the rate of Shs. 900/= per month i.e. a total of Shs. 6,300/=. She has also claimed a gratuity for the 19 months he had been in the employment of B the defendant and finally she claims compensation Shs. 24,000/= for the death of the deceased.

The defendant objected that the deceased was not injured while in his employment. I am fully satisfied that the deceased had the accident of falling down while he was within the employer's premises. Jamnadas C Bhanji who is an employee of the defendant and who in the course of this suit has thrice appeared together with other officials on behalf of the defendant, told the court that the deceased fell down while climbing down the steps within the premises at Kijangwani and that he (Jamnadas) took the deceased in a D Company's vehicle to the V.I. Lenin Hospital where the deceased was admitted. Apart from that the defendant after being summoned to come to court wrote a letter CEB/EI/I.B/FRI/82 of 12th November, 1982. In that letter he asked the court to defer entertaining the suit for three months and promised that all lawful E claims would be met once the Directorate of the Community Development presented

the relevant claims papers. Thus by that letter the defendant admitted the duty to pay compensation. Again on the 28th March, 1983, the representative of the defendant, one Swinder Singh, when asked about the letter reiterated to the court that they were awaiting the papers from the Directorate to make payments. F

Therefore the deceased had the accident and got injured while he was within the premises of the defendant.

On the other hand the plaintiff produced a letter from the defendant which claimed that the deceased had G the accident after the working hours. However, Mr. Sachdev, who came on behalf of the defendant, denounced the letter. He said that the letter was not signed and so any body could have written it. Mr. Sachdev added that the Company was ready to assist the plaintiff inspite of the letter. But the issue here is not assistance but right. H

Though the letter, exhibit B, is not signed and therefore its admissibility is doubtful it brings us to the vital issue in this suit. According to Mr. Jamnadas the deceased had the accident within the employment premises as he was climbing down some steps to go home after the working hours. Therefore the I deceased was not injured while working as the plaintiff claims.

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RAMADHANI CJ

The relevant legislation here is the Workmen's Compensation Decree Cap. 65. Sub-section (1) of Section 6 A requires an employer to compensate an employee who gets injured as a result of an accident "arising out of and in the course of the employment". Is the accident in this case covered by that provision?

As I have already said the accident took place after the working hours and as the deceased was going home but B while was still within the premises of employment. In the case of Hill v Butterley Co. Ltd. [1948] 1 All E.R. 233 the plaintiff was an employee of the defendant. As she was crossing the premises of the defendant to get to the office so as to register her name before starting work she slipped on an icy slope and was injured. The Court of C Appeal held that the accident "arose out of and in the course of employment". I do not see any difference between an injury sustained while one goes to work within the employer's premises and that sustained while one goes from work within the employer's premises. D

In another case of Campbell v Proud's Engineering Co-Ltd. [1947] 2 All E.R. 97 a workman was an employee of the defendant and was going for his pay in another office of the defendant which was some distance away. On his way he jumped on the near side of a passing lorry that was going in the same direction. An accident happened and E the workman died. the Court of Appeal held that the workman was going to the office for his pay and he was in the course of his employment. The jumping on the lorry instead of proceeding on foot did not make his journey of a different kind from what it would have been had he used a safer method. In the case before me the deceased did G not even use any unsafe method. He was merely leaving the employment premises which he had to leave. Therefore the injuries arose out of and in the course of employment.

In a case of Tanzania (Mainland) of Ali Mahdi v Abdulla Mohammed [1961] E.A. 83 the respondent was in a lorry of the appellant. Some sand was thrown up by a passing vehicle and

entered his eye and caused him to lose it. The High Court of Tanganyika (as it was then) upheld the decision of the District Court that the accident arose out of and in the course of the respondent's employment. The phrase "out of employment" has been given wider H meaning which I think will apply in this case.

Finally I should add that in other jurisdictions within the Commonwealth legislations like this have provided expressly that an injury sustained by a workman while going to or from work at the place of employment and residence is arising out of and in the course of employment. The statute of Victoria, Australia is like I

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that. That legislation agrees with the decision in Hill v Butterley Co. Ltd. above. I do not think that it was A the intention of our legislation to exclude workmen who sustain injuries on their way to or from work.

In the case of James Patrick & Co. Proprietary Ltd. v Sharpe [1954] 3 All E.R. 216 the husband of the B respondent was employed by the appellant. As he was travelling between his place of residence and his place of employment he suffered an auricular fibrillation as a result he died. It was held that the injury arose out of and in the course of employment. This case was governed by the law of Victoria that I have C mentioned that being on the way to work is being at work. Nevertheless the fact is that even such diseases as the one in that case has been taken into consideration. I feel therefore that falling from some steps as one leaves the work premises is even a stronger case.

I therefore find that the injuries sustained by the deceased are covered by the said Sect. 6(1). D

There are certain conditions under this Decree. First, under Sect. 18 (1) the employer is to be informed as soon as possible after the accident. I am satisfied that such notice was given. Mr. Jamnadas said that soon after the accident he reported to the man in charge, one Gurcham Singh, and asked for the keys to E take the deceased to the hospital. The plaintiff also has said that they reported that the deceased was admitted to hospital. Thirdly, the attendance and Pay Register of the defendant has shown that the deceased from 20th January to 24th January was recorded as sick. Then that entry was F cancelled and the deceased was not paid for those four days. This shows that the defendant was aware of the illness of the deceased. It is possible later doubted the information hence the cancellation. But there is abundant evidence from the V.I. Lenin records (Exhibit A) that the deceased was admitted there from 20th G January to 26th July. Hence I am satisfied that the defendant had this information. If he had doubted it then there were no grounds for the doubt.

The Second condition under section 18(2) is that claims for compensation have to be lodged within six H months from the date of the accident or death. Here death occurred on 26 January, 1981. Hence the claims had to be presented before 26th January, 1982. It is not clear exactly when the plaintiff started the claims. She stated that when she wanted to see the defendant she was ignored and so decided to go to JUWATA I and the Directorate of Community Development. A letter 3/ZNZ/Vol.11/1/79 of 19th June, 1982 from

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A the Secretary of JUWATA of the Urban District to the Junior Minister of Health making inquiries as to whether the death of the deceased was due to injuries sustained out of and in the course of employment. Thus there is no proof whether the claims were presented before 26th July, 1981 or not. However, there is B a proviso that claims presented out of time will be maintained if the delay was due to mistake or other reasonable cause. I am of the well considered opinion that even if the plaintiff was late in presenting her claims, of which there is no evidence, then it was because of some mistake on her part as I would not C expect her, a mere housewife, to know the law.

Let me now turn to the claims themselves. The defendant has said that the deceased had a bad leg to start with and that he was regularly attending treatment. Mr. Jamnadas stated so. But it is equally true that the D deceased received some injuries from the accident within the employment premises. It is possible, therefore, that the accident aggravated the already existing illness. Nevertheless the defendant is obliged to compensate. The case of Ogden Industries Pty Ltd v Lucas [1969] 1 All E.R. 121 is relevant here.

I concede that the deceased must have had some other disease and that is why it took him seven months E in the hospital without the wound healing. Medical records show that he was not diabetic. The wound was discharging and the pus was taken for culture and sensitivity. He was also anemic and they had to give him blood transfusion. I consider all these in the question of the payment of his salary for the seven F months. I have not been told of the terms of employment but they seem to be that of daily paid. Pay was given every week but only for the days one had worked. As there is no law in Zanzibar on these questions of terms of employment I am prepared to take it that an employer in Zanzibar can afford to wait on an G employee for a month. The defendant has shown that he normally pays his employees even for the days they have been ill. Therefore I find that the plaintiff is to get a month's salary of the deceased i.e. Shs. 900/=.

H Section 12 of the Workmen's Compensation Decree provides a compensation equal to the salary of 36 months or to Shs. 24,000/= which ever is the lesser. I find therefore that compensation is Shs. 24,000/=.

Again there is no law in Zanzibar regarding payment of gratuities or severance allowances. But for a I service of 19 months there is a right of receiving some sort of a gratuity. I am prepared to allot a quarter of the total emoluments of the 19 months i.e. Shs. 4,275/=.

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I may just add that the Revolutionary Government of Zanzibar uses such formula in the payment of A gratuities.

Judgment for the plaintiff.

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B

[zRPz]HIMID MBAYE v THE BRIGADE COMMANDER 1984 TLR 294 (HC)

Court High Court of Tanzania - Zanzibar

Judge Ramadhani CJ

December 15, 1983
CIVIL CASE 8 OF 1981 C
Flynote
Civil Practice and Procedure - Jurisdiction - One of the parties is a head of a Department of the Union Government - Whether the High Court for Zanzibar can hear and determine the suit. D
Civil Practice and Procedure - Institution of Proceedings - One of the parties is a head of a Department of the Union Government - Procedure before instituting the suit - Civil Procedure Decree, Cap. 8, s. 60.
Landlord and Tenant - Tenant caused damage to premises - Parties did not agree on anything regarding E maintenance of the suit premises - Whether damages recoverable - Rent Restriction Decree, Cap. 98, s. 28(1)(b)(i).
Headnote
The plaintiff filed a suit against the defendant in his official capacity as Commander of the Nyuki Brigade. F Because the defendant is a Union Government Department the court had to resolve two preliminary matters. First, whether or not the High Court for Zanzibar has jurisdiction to entertain such a suit. Second, if the court has such jurisdiction whether there is any procedure to follow before filing such a suit. G
The plaintiff let his premises to the Brigade Commander. When he was given vacant possession of the same much damage had been done on the premises. Although there was no agreement by the parties on anything regarding maintenance of the suit premises the plaintiff sought to recover damages to put the H house into its former state.
Held: (i) The Government Proceedings Act, 1967 does not apply in Zanzibar even though there are I numerous Departments of the Union Government in Zanzibar;
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A (ii) since there is no law in Zanzibar prohibiting this court from hearing such suits as this one, it is the duty of this court to hear and adjudicate upon this suit;

(iii) under the laws of Zanzibar a two month's written notice to "the Chief Secretary to the Zanzibar B Government" is necessary before the court may entertain a suit against the Government;

(iv) since "the Chief Secretary to the Zanzibar Government" has not been mentioned in the Existing Laws Decree, 1964, such notice may be given to the Attorney-General;

C (v) even though section 60 of the Civil Procedure Decree has specifically mentioned the Zanzibar Government, now that there are two governments in Zanzibar and in view of the intended effect of the legislation (i.e. to notify it before filing a suit) the procedure applies to the Union Government as well;

D (vi) section 28 of the Rent Restriction Decree imposes a duty on the tenant to maintain the premises in the same state, fair wear and tear and damage arising from irresistible force excepted, as that in which the premises were at the commencement of the tenancy;

E (vii) in this case most of the damage is not from irresistible force but due to alterations.

Case Information

Judgment for the plaintiff

Case referred to:

F 1. Abdulhussein Bodalbhoy v Marekwa, 5 Z.L.R. 44

Case Information

Ramadhani, C.J.: In this suit the defendant, the Brigade Commander, is an officer of a Department of the Government of the United Republic of Tanzania as opposed to the Revolutionary Government of Zanzibar. G He is sued in his official capacity as the commander of the Nyuki Brigade.

This suit was filed on 2 April, 1981. Since the defendant is a government department, I ordered that the provision of Sect. 690 of the Civil Procedure Decree Cap. 8, relating to suits against the government, to be H followed. The plaintiff was directed vide our letter Ref. No. 341/81 of 2 June, 1981 to send his claims to the Attorney-General of Zanzibar. He did so by his letter of the same date. The Honourable, Attorney-General replied to the plaintiff vide his letter L.D. 21 Vol. IV/217 of 2 July, 1981 that he should I follow the procedure laid out in the Government Proceedings Ordinance, Cap. 5. (That law had already been replaced though). The plaintiff

wrote to the A-G on 6 July, 1981 complaining that he was being inconvenienced. He sent a copy of the A letter to me. I responded on 11 July, 1981 that as the Defence Forces was a department of the Union Government he should follow the advice of the A-G. I also advised him to try to settle the matter out-of-court by corresponding with the Defence Forces Headquarters, Dar es Salaam. The plaintiff B complied with the advice. He wrote to the Chief of Defence Forces (C.D.F.) On 20th July, 1981. I also wrote to the Director of Legal services on 28th July, 1981 (Ref. A/JM/9/81/84) giving support to the plaintiff's letter. An exchange of letters ensued between the Defence Forces, the plaintiff and myself. I do C not think it is necessary to mention all of them. The plaintiff also wrote to the Minister of Justice of Tanzania seeking her fiat as provided under the Government Proceedings Act. The plaintiff was told by the Attorney-General of Tanzania that as Justice is a non-union matter, the Minister of Justice of Tanzania has no jurisdiction in Zanzibar (J/C. 20/30/8 of 15 September, 1981). D

Eventually the suit came for hearing before Msumi, J. on 10th November, 1983. The Army Officer who came on behalf of the defendant had not been given any instructions. The case was adjourned to 22nd November, 1983 and neither of the parties turned-up. However, the defendant sent a letter Ref. No. 301 E KV/1295 - 1 of 19th November, 1983, enclosing a copy of the letter Ref. MMJ/1152 - 1 of October, 1983 from the C.D.F. to the A-G (T). These claims were sent to the A-G so that he could deal with them under the Government Proceedings Act, 1967. I instructed the Registrar of the High Court to write to the A-G (T) to F brief him and

indicate to him that more likely that the C.D.F. was unaware of what had transpired. The Registrar did so vide his letter Ref. No. 915/83 of 25th November, 1983. It was also stated that the case was up for mentioned on 24th January, 1984 and that a date for hearing will be fixed then. A reply came to the G effect that the applicable law on the Mainland is the Government Proceedings Act, 1967 as amended by Act No. 40 of 1984. The letter, Ref. 3/C.60/4/1136/8 of 23rd December, 1983, concluded: "The case must be finalised in accordance with the laws and procedure of Zanzibar." H

The case was up on 24th January, 1984 both parties were absent. On 24th February only the plaintiff appeared. The case was heard ex-parte under O XI R 6 (1) (a). I am fully satisfied that the defendant was aware that the case was up for a last mention on 24th January and that the hearing was to be on 24th February. I

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RAMADHANI CJ

A Apart from my being so satisfied Law, C.J. had said in Abdulhussein Bodalbhoy v Marekwa 5 Z.L.R. 44 that:

> In my opinion, apart from the Official notice in the 'Gazette' referred to, it is the duty of parties to keep themselves B informed as to when their cases will be tried.

In that case the plaintiff was absent. However, his lordship by using the plural "parties", I have no doubt that he would have arrived at the same opinion had the defendant been absent. I might just add that the C opinion was given taking into account O IX of the Civil Procedure Decree, Cap 4 which is in pari materia with O XI of the present Cap. 8.

The defendant is the Brigade Commander of the Nyuki Brigade which is in Zanzibar. This is one of the D Brigades of the Tanzania Peoples Defence Forces which have been constituted under Article 89 (2) of the Katiba ya Jamhuri ya Muungano wa Tanzania, 1977 and also under Section 4 of the National Defence Act, 1966 (Act NO. 24 of 1966). It is quite evident that under the said Article 89 of the Constitution the Defence E Forces is a Government Department and actually a Department of the Union Government. Apart from that Article, national defence (ulinzi) is a union matter under item 3 of the Second Schedule to the Constitution of the United Republic of Tanzania. Again Section 2 of the National Defence Act, 1966 extends the application of that law to Zanzibar as well. Hence the defendant is a Head of a Department of F the Union Government.

Under the Government Proceedings Act, 1967 (Act No. 16 of 1967 of the United Republic) a Department of the Union Government cannot be sued without first obtaining a written permission to do so from the G Minister of Justice (Section 6). As the defendant is the Head of a Department of the Union Government he is covered by this provision. The defendant cannot be sued unless such permission is first obtained. However, the Government Proceedings Act, 1967 does not apply in Zanzibar even though there are numerous Departments of the Union Government in Zanzibar. Therefore I have to look at the relevant law H in Zanzibar concerning suits against Government Departments and officials.

Section 60 of the Civil Procedure Decree, Cap. 8 of the Laws of Zanzibar (1958 Series) provides as follows:

I No suit shall be instituted against the Zanzibar Government, or against a public officer ... until the expiration of two months

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RAMADHANI CJ

next after notice in writing has been delivered to, or left at the office, the Chief Secretary to the Zanzibar Government A or to the District Commissioner of the District ...

There are two issues regarding this section. One, the section talks about the Zanzibar Government but here we have a Department of the Union Government. Now, does this procedure apply to the Union B Government? I shall deal with this issue shortly. The second issue is which official of the Zanzibar Government is to be regarded to have taken the position of "the Chief Secretary to the Zanzibar Government". C

As for the second issue nowhere has it been stated which official takes the place of the Chief Secretary. Section 3 of the Existing Laws Decree, 1964 (Decree No. 1 of 1964) provides:

(a) references in any existing law to the former Sultan or Prime Minister shall be read as references to the D President;

(b) references in any existing law to the Protectorate shall be read as references to the Republic: E

(c) references in any existing law to the British Resident or to the Resident-in-Council shall be read as reference to the Minister for the time being responsible for the matter in question. F

The Chief Secretary has not been mentioned. Hence when the plaint was filed the plaintiff was advised to send his claims to the Attorney-General of the Revolutionary Government. This was done in the hope that he could be advised by the Chambers where he could lodge his claims. He did this as has already been G told. But secondly, the Attorney-General is the Chief Legal Adviser of the Revolutionary Government of Zanzibar per Article 18 of the 'Katiba ya Serikali ya Mapinduzi, 1979'. Likewise in Order XXXI Rule 4 it is provided that: H

The Attorney-General in any court, or such other person as the President may appoint in this behalf, shall be the agent of the Government for the purpose of receiving process against the Zanzibar Government issued by such court. I

Hence the Attorney-General is in any case concerned.

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RAMADHANI CJ

A But there is still the question whether this procedure applies to the Union Government. By looking simply at the precise, clear and unambiguous words used the procedure applies only to the Revolutionary Government of Zanzibar. But at the time this law was enacted there was only one government in Zanzibar B but now there are two governments: The Revolutionary Government and for union matters the Union Government. The two are fused in the same person who is both the President of Zanzibar and the Vice-President of the United Republic. Hence in order to give a correct answer to this question I have to C determine what was the intention of legislating this procedure. I am of the opinion that it was intended that the government should not be taken unaware and merely receive summons to come to court. It was

intended that the government should at least have a notice of two months so as to prepare itself before a summons be issued to them or even to settle the matter out of court for it is unbecoming of a government D to be sued. If so that intention is for all governments; be it of Zanzibar or of the Union. In this interpretation I have the support of the Government Proceedings Act, 1967. Though that law does not extend to Zanzibar but this court recognises it as law of the United Republic and the fact that government E too has prescribed a procedure for its being sued.

Thus even though Sect. 60 of the Civil Procedure Decree has specifically mentioned the Zanzibar Government, now that there are two governments in Zanzibar and in view of the intended effect of the F legislation I find that the procedure applies to the Union Government. Hence I answer the question I had posed earlier in the affirmative.

Under the Laws of Zanzibar all that is required is to give a two months notice. After the expiration of that G period the court goes on to hear the case. There is no requirement of securing the written permission of the Minister first.

In the suit before me a notice of over two years, let alone two months, has been given to both Attorney-Generals: of the Revolutionary Government and of the United Republic. Therefore I deemed it H proper to continue with the hearing of the case.

However, should I have erred in holding as I have done, which I am convinced I have not, still this court has jurisdiction to entertain this suit under sub-section (1) of Section 4 of the Civil Procedure Decree which I provides:

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RAMADHANI CJ

The courts shall (subject to the provisions herein contained) have jurisdiction to try all suits of a civil nature excepting A suits of which their cognisance is either expressly or impliedly barred.

There is no law in Zanzibar which "expressly or impliedly" bars the Zanzibar courts to hear any suits B against the Union Government. As I have already stated the Government Proceedings Act, 1967 does not extend to Zanzibar. Article 77 of "Katiba ya Serikali ya Mapinduzi, 1979" provides: C

Sheria yeyote iliyotungwa na Bunge la Jamhuri ya Muungano wa Tanzania haitatumika Zanzibar ila kwa mujibu wa masharti ya aya (h) ya ibara ndogo (2) ya ibara ya 94 ya Katiba ya Jamhuri ya Muungano ya 1977. D

That paragraph (h) which has been cited provides:

Sheria yeyote iliyotungwa na Bunge kuhusu jambo lolote haitatumika Tanzania Visiwani ila kwa mujibu wa masharti yafuatayo: E

(i) Sheria hiyo iwe imetamka wazi kwamba itatumika Tanzania Bara na vile vile Tanzania Visiwani au iwe inabadilisha, kurekebisha au kufuta Sheria inayotumika Tanzania Visiwani; au F

(ii) Sheria hiyo iwe inabadilisha au kurekebisha au kufuta sheria iliyokuwa inatumika tangu zamani Tanzania Bara ambayo ilikuwa inatumika pia Tanzania Visiwani kwa mujibu wa Mapatano ya Muungano wa Tanganyika na Zanzibar, ya mwaka 1964 au kwa mujibu wa Sheria

yoyote ambayo ilitamka wazi kwamba itatumika G Tanzania Bara na vile vile Tanzania Visiwani; au

(iii) Sheria hiyo iwe inahusu mambo ya Muungano; na kila inapotajwa Tanzania katika Sheria, ifahamike kuwa Sheria hiyo itatumika nchini Tanzania kwa mujibu wa ufafanuzi uliotolewa na aya hii." H

Now the Government Proceedings Act, 1967 is not among the laws as provided above. Judiciary is not a union matter. Thus even that law cannot be taken to prohibit the Zanzibar courts from hearing suits I against the Union Government.

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RAMADHANI CJ

A Section 129 of the Civil Procedure Decree also provides:

Nothing in this Decree shall be deemed to limit or otherwise affect the inherent power of the court to make such orders B as may be necessary for the end of justice or to prevent abuse of the process of the court.

Thus so long as the plaintiff has filed his suit, this court cannot dismiss it and be without authority as to fail to give justice and bring the whole judicial process into contempt. It is imperative that this court hears C and adjudicate on this suit.

By applying the two provisions of the Civil Procedure Decree, therefore, the situation is this: since there is no law in Zanzibar prohibiting this court from hearing such suits as this one it is the duty of this court to hear and adjudicate upon this suit.

D After disposing of the legal issues let me now turn to the claims themselves. The plaintiff is the owner of a house situated at Kidogobasi in Mwera, Zanzibar. The plaintiff was requested by the defendant's letter Ref. 1680 - Vol 1 of 24 May, 1968 which was signed by one Ltd. Col. Seif Bakari, to provide E accommodation to certain army officers. The plaintiff agreed to do so vide his letter of 28 May, 1968. However, he gave certain conditions. It is better if I quote the relevant portion of that letter:

Kuhusu upangaji huo naomba kusema hivi:-

F (1) Tutakodisha nyumba tu pamoja na vitu viliomo ndani - yaani vitanda, makabati, meza, viti etc.

(2) Miti na matunda haimo katika ukodishaji;

(3) Tutakuwa na haki kuingia shambani kwa ajili ya kuchuma matunda na kutazama hali ya shamba kwa wakati wa desturi;

G (4) Kodi ya nyumba pamoja na vitu vyake ni Shs. 100/= (Shilingi mia moja) kwa mwezi.

Tungependa kujua jina la mpangaji - yaani, ni maofisa maalumu kwa binafsi; au inapanga Serikali na kodi tutapokea kwa nani?

H That letter was replied to vide Ref. No. 2143 -1 Vol.II of 3 June 1968 as follows in the material portions:

I Kodi ya nyumba pamoja na vitu vyote viliomo ndani ya nyumba hiyo gharama zake zitalipwa na Jeshi.

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RAMADHANI CJ

Bill yako itabidi kuletwa kila mwezi Makao Makuu ya Jeshi. A

Kabla ya Ofisa huyo kuhama ni bora mkabidhiyane vyombo vyote viliomo ndani ya nyumba yako.

It was also agreed that the garden would remain in the hands of the plaintiff. The officer who was to occupy the premises was one Lt. Haji Juma. It was requested that the officer be allowed to move into the B house the same day the letter was written. This letter was signed by Colonel Yusufu Himid Maftah.

From those letters it is evident that there was a contract of renting this house to the defendant on the agreed terms. C

On 5 June, 1968 the plaintiff handed over to Lt. Haji Juma in writing the furniture which was in the suit premises. These pieces of furniture were as follows:

(a) two beds and two mattresses;
(b) one chest of drawers; D
(c) one cupboard;
(d) one bench;
(e) one dining table;
(f) one round table;
(g) one occasional table; E
(h) one mirror;
(i) one platter;
(j) one Bombay chair;
(k) two chairs;
(l) two rugs and one carpet; F
(m) one brass basin and one brass kettle;
(n) one basin;
(o) one brass pot.

The plaintiff has stated that after a short while the suit premises were not occupied by army officers but by G people he did not know. The plaintiff has also said that he was receiving rents of Shs. 60/= per month only. He also has complained that the house has been grossly neglected and as a result it had become dilapidated and all the pieces of furniture that were in the house had disappeared. H

On 10th February, 1981 the plaintiff gave the defendant a notice to terminate the contract and hence to vacate the suit premises and to return the missing pieces of furniture. The defendant did not reply. However, the plaintiff went to the Nyuki Brigade Headquarters and they came to some understanding. He I was given vacant possession of the suit premises together with

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A all arrears of rents. The vacant possession of the premises was rendered on 1 May, 1981 vide letter Ref. No. 5315 (BAO). However, this was after the plaintiff had already filed this suit on 2 April, 1981.

The plaintiff has three claims. First, he claims rents for four months of January, February, March and April B of 1981 before vacant possession was tendered. He thus claims a total of Shs. 240/= at the rate of Shs. 60/= per month. Secondly, he claims the pieces of furniture and other utensils that he had handed over to Lt. Haji Juma. He has estimated their value to be Shs. 10,000/=. Finally he seeks compensation for the C damage to his house amounting to Shs.11,000/=.

As for the arrears of rents the plaintiff produced his letter of 28 June, 1982 to the defendant which was not replied to. It seems that the parties had come to agree on the rent of Shs. 60/= per month instead of Shs. D 100/= eventually. Therefore the arrears of rent to the tune of Shs.240/= has to be paid.

It has been proved that there were certain pieces of furniture which had been handed over to Lt. Haji Juma on behalf of the defendant. The plaintiff has estimated their total value to be Shs. 10,000/=. This value is E that of 1968. However, all of the things would have certainly depreciated by now. Some of them like the two rugs, the carpet and the two mattresses would have been worn out and fit only to be disposed of. As the plaintiff did not give the value of every individual item it is extremely hard to estimate the degree of F depreciation of every one. Even then after almost twelve years I consider a compensation of a total of Shs. 5,000/= to be reasonable.

Then comes the issue of damage to the house. The parties did not agree on anything regarding maintenance of the suit premises. However, the Rent Restriction Decree, Cap. 98 in section 28 outlines the G duties and responsibilities of both the landlord and tenant regarding maintenance except if they have agreed differently. The relevant part is sub-paragraph (i) of paragraph (b) of sub-section (1) of section 28 which imposes on the tenant the duty to:

H maintain the premises in the same state, fair wear and tear and damage arising from irresistible force excepted, as that in which the premises were at the commencement of the tenancy.

I The plaintiff has stated that the defendant has made certain alterations to the house. For example the toilet has been sealed and turned into kitchen. Most of the damage is not from irresistible

force but due to the alterations. He claims that he would need Shs.1,000/= to return the house into its A former state. Comparing to the present high building costs I do not think that the amounts claimed are out of proportion in fact it could be lower than the actual costs. Be as it is the plaintiff has claimed that amount and so I grant him what he has prayed for. B

I therefore find in favour of the plaintiff a total of Shs. 16,240/= with costs.

Judgment for the plaintiff. C

1984 TLR p304

D

[zRPz]IN THE MATTER OF APPLICATION BY SIMEON MANYAKI AND IN THE MATTER OF THE EXECUTIVE COMMITTEE AND COUNCIL OF THE INSTITUTE OF FINANCE MANAGEMENT 1984 TLR 304 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mapigano J

September 12, 1986
MISC. CIVIL CAUSE 42 OF 1984 E
Flynote
Administrative Law - Natural justice - Disciplinary proceedings in higher educational institution - Failure to F sufficiently appraise a student of the particulars of the prejudicial allegations made against him - Rule of natural justice not complied with.
-Headnote
The applicant was a third year student at the Institute of Finance Management. After the January 1984 G final examinations it was discovered that the examinations papers and model answers had been extensively leaked. The examination results were nullified and students were called upon to re-sit in April, 1984. In addition a committee was set up to probe the leakage and prepare a report. The applicant was one of those persons who were investigated by the probe committee. H
On April 27, 1984, the applicant was officially informed that he had passed the April, 1984 examinations. Five days later, i.e., on May 2, 1984 he was served with a letter terminating his studies at the Institute with immediate effect, nullifying his April, 1984 I
1984 TLR p305
MAPIGANO J
A examination results and barring him from attempting any IFM examinations in future.
The applicant filed the application requesting the High Court to exercise its discretion and grant two orders, namely (i) an order of certiorari to quash the decision of the Executive Committee of the Council of B the Institute of Finance Management dated 2nd May, 1984, and (ii) an order of mandamus requiring the Council of the Institute to award him an Advanced Diploma in Accountancy.
It was argued in favour of the applicant that the probe committee did not sufficiently appraise the applicant C of the prejudicial allegation levelled against him and that he was not afforded opportunity of being heard.
Held: (i) An administrative body exercising functions that impinge directly on legally recognized interests D has a duty to act judicially in accordance with the rules of natural justice,

(ii) disciplinary proceedings in higher educational institutions have to be conducted in conformity with natural justice provided at least the penalty imposed or likely to be imposed is severe;

E (iii) the applicant whose rights and legitimate expectations stood to be so adversely affected by the inquiry had the right:

(a) of being sufficiently appraised of the particulars of the prejudicial allegations that were to be F made or had been made against him, so that he could effectively prepare his answer and collect evidence necessary to rebut the case against him;

(b) subject to the need for withholding details in order to protect other overriding interest, of being G accorded sufficient opportunity of controverting or commenting on the materials that had been tendered or were to be tendered against him;

(c) of presenting his own case;

(d) of being given a reasonable and fair deal

H (iv) the applicant was deprived of his right.

Case Information

Application granted.

Cases referred to:

I 1. R.v Aston University Senate, Exp. Roffey and Another [1969] 2 QBD 538.

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MAPIGANO J

2. Glynn v Keele University [1971] 1 WLR 487. A

3. Ceylon University v Fernando [1960] 1 WLR 223.

4. Re Pergamon Press Ltd [1971] Ch. 388.

M. Marando, for the applicant.

S. Mjasiri, for the Respondent. B

[zJDz]Judgment

Mapigano, J.: The applicant Simon Manyaki is a senior accountant with the National Shipping Agencies. He wants this court to exercise its discretion and grant two orders, namely (1) an order of certiorari to C quash the decision of the Executive Committee of the Council of the Institute of Finance Management dated 2 May 1984; and (2) an order of mandamus requiring the Council of that Institute award him a certificate of Advanced Diploma in Accountancy. The application has been stoutly contested by the D Institute.

Most of the salient facts are not in dispute. The applicant was a student at the Institute in Dar es Salaam, pursuing a course of study in accountancy conducted by the Institute during the 1983/84 academic year. He and other students sat for final examinations in January, 1984. Sadly, an outrage had taken place in E connection with the examination papers and model answers and the examinations had been extensively leaked. A good number of the candidates had obtained unauthorised prior access to the examination papers and model answers. The examiners were not slow to apprehend that there had been such a leak. It F was perhaps inevitable, for some of the candidates were so naive, nay thoughtless, that they reproduced the model answers verbatim. It was considered to be a case where the examination as a whole could not properly be said to be a reliable measurement tool of knowledge and expertise of the candidates. A G decision was thus made to (1) nullify the results and require the candidates to re-take the examinations in April, 1984; (2) set up a committee to probe the leakage and prepare a report;

and (3) seek assistance of the state security organs to investigate the matter. It was also decided that the results of the April examinations should be tied to and tabled together with the report of the probe committee and to postpone any disciplinary or punitive action against any individual who may have been involved in the affair, H including the nullification of the April examination results, until the final results of the investigations have been submitted. I

1984 TLR p307

MAPIGANO J

A The applicant and the other candidates resat the examinations in early April when the probe committee that was formed was carrying out investigations. On 27 April, 1984 the applicant was officially informed that he had passed the examinations. However, on 2 May 1984 he received a distressing letter from the B Acting Director of the Institute which read as follows:

Re: TERMINATION OF ADVANCED DIPLOMA STUDIES

1. You may remember that the Institute in January, 1984 encountered problems in the final examination process C of the 1983/84 Advanced Diploma in Accounting third year students because of the fact that a good number of the students in that class had unauthorised access to some of the exam papers and/or model answers. D Subsequent to this the Institute set up an independent probe committee to investigate this whole affair.

2. The Executive Committee of the IFM Council which set up this investigation received and deliberated the E probe committee report in its fortieth (extra-ordinary) meeting held on Friday, 1984. According to the findings and conclusions of this report you are one of the students who are highly implicated.

3. The Committee noted with grave concern that you are depicted as one of the primary clique member in F your class who participated and/or assisted contrary to Institute's rules of examination and good discipline in the commercialized distribution and propagation of the examination papers and/or model answers which leaked. The Committee observed further that, as if that was not enough, you subsequently did not want to tell G the truth to the investigators; during the investigation which ensued you were nonrepentant; you were intransigent if not arrogant and you were obdurate if not thoroughly uncooperative in this investigation. It was H noted also that the wide propagation of the leaked exams caused a lot of problems to the community and entailed enormous financial costs to the Institute. All these behavioural patterns, it was observed by the Committee, are not consistent with good discipline and are contrary to professional ethics and integrity in your I field of training.

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MAPIGANO J

4. Because of the above reasons the Executive Committee of the Institute's Council had decided to terminate A your studies at the Institute with immediate effect and also to bar you from attempting any IFM examinations in future as well as nullify whatever results you may have had in this year's April 2-6 examinations, if you happened to sit for these examinations etc. B

This letter was copied to the applicant's employer, among others. His employer reacted by writing to him on 23 May, 1984 rebuking him and informing him that the fact that he had undergone the course of study C would not be recognized.

At this juncture I pause to notice, only to reject, an argument that was advanced by applicant to the effect that the Institute had no legal competence to terminate his studies, nullify his results of the April examinations and bar him from future enrolment and attempting any of its examinations. For one thing, D examinations such as these, are meant to be honestly and honorably set and taken for they are contemplated to be, as the Institute observed, a reliable measurement tool of knowledge and skill of the candidates. For another, it cannot be denied that the Institute stood embarrassed and disgraced by the E leak and its integrity stood tainted. The leak thus bore viewing with seriousness and those who were involved in it should surely expect to be severely dealt with and visited with deterrent or exemplary penalties. I entirely agree with the Institute that under both IFM Act, 1972, in particular section 7 thereof, F and the general rules governing such examinations, it has the discretion to treat the applicant in the manner it did.

The probe committee that was formed by the Executive Committee of the Council of the Institute was given the following terms of reference: (1) to find out whether there was a leakage of the examinations; (2) if so, G to establish and indicate when, how, where and by whom the examinations were leaked, what papers and/or model answers leaked and to what extent; (3) to find out weaknesses, if any, in the examination administration system that might have contributed to the leakage, in particular, to examine the H circumstances of setting, marking, external examining and invigilation of examinations; (4) to make observations on the above points and any others that might be pertinent thereto, draw conclusions thereof and recommend appropriate action to be taken; (5) to determine and regulate its proceedings as it deems fit and to I

A co-opt any other person or persons who in its opinion may facilitate the execution of its tasks.

In discharging its assignment the probe committee examined a host of documents and conducted interviews with 24 people, who included students, examiners and officials of the Institute and NBAA, the B acronym for National Board of Accountants and Auditors. It was standard procedure to send the examinations papers to NBAA for moderation. The applicant was one of the students who was interviewed by the probe committee.

C At the conclusion of the investigations the probe committee stated, in sum, that it profoundly suspected on Chandrasekharan, a moderator with NBAA, and one Mashenene, a co-ordinator with the Institute, to be the source of the leak. It opined that either of the two had surreptitiously given one Angela Mpanduji (who was a candidate) the examination papers and that the said Angela had in turn passed them D to the applicant and two other candidates who, in turn, in the words of the committee, constituted themselves as distribution agents and made them available to other candidates for consideration of cash or kind.

E The first main question that arises in whether the Council had authority to establish the Executive Committee that set up the probe committee, and if the answer be yes, whether the Executive Committee had competence to exercise such powers. By paragraph 10 of his affidavit the applicant contends that the IFM Act, 1972 does not provide for the creation of such a committee and that, therefore, the creation of the F committee by the Council was an illegal exercise of the powers conferred on the Council by the Act. Mr. Marando who appeared for the applicant has submitted that the only body that could have acted against the applicant was the Students' Disciplinary Committee established under rule 37 of the IFM Student Rules G set out in the IFM 1983/84 Prospectus. Against that submission Miss. Mjasiri of the Tanzania Legal Corporation, counsel for the respondent Institute, replied that the Executive Committee had a legal status and that under the IFM Act the Council enjoyed discretion to establish such a committee. With regard to H the IFM Student Rules, it was her argument that those rules did not apply to academic matters.

As indicated, the Institute was established by an Act of Parliament. i.e. Act No.3 of 1972. The objects and functions are to be found in section 4. By section 6(1) the Council is the body vested with the governance I and control of the Institute. Now the Executive Committee was created by the Council in its meeting

held on 24 September 1974. It is a smaller body than the full Council, it being composed of only half of the A members of the Council.

Among other things, the Executive Committee was charged with the functions of dealing, in emergency cases, with such matters as are normally considered by Council, in between Council meetings. It was expressly stipulated that the decisions of that Committee are subject to ratification by the full Council. B

In my view section 6(2)(f) of the IFM Act is wide enough and gives the Council power to establish such a Committee and to invest it with such authority. I take the view that this was not an instance of abdication C of power by the Council, but a valid exercise of its statutory discretion. As aforestated, the Council prescribed that all decisions of that Committee would be subject to ratification by the full Council. Essentially, by that proviso the Council retained complete control over all the functions assigned to the Committee and the Council intended to continue to address its own mind to the exercise of the powers D delegated to the committee.

I also take the view that the Executive Committee did not encroach on or usurp the powers of the students' Disciplinary Committee. It is not true that the Students' Disciplinary Committee has any power to deal with academic matters. I have perused the IFM Student Rules and I have come to the conclusion that such E matters as the leakage of examinations fall outside the purview of those Rules. I am satisfied that the jurisdiction of the Students Disciplinary Committee is confined to what may be described as domestic matters such as those pertaining to accommodation, kitchen, drunkenness, nuisance and the misuse of F music instruments.

I pass to the second main question, which is whether the proceedings of the probe committee were conducted in accordance with the rules of natural justice. The applicant has averred, vide

paragraphs 11 and 13 of the affidavit, that he was denied natural justice in that (a) he was not informed, throughout, that G he was a subject of suspicion or investigation; and (b) that he was not afforded opportunity of being heard. This has been denied by the Institute.

The parties seem to be acutely aware, and it is trite to remark, that an administrative body exercising functions that impinge directly on legally recognised interests owes it as a duty to act judicially in H accordance with the rules of natural justice, which basically means that adoption of fair procedure, which fundamentally demands freedom from interest and bias on the part of the administrative body and the right to a fair hearing for those who are immediately affected by its decision. And it is common ground that this I court

A has discretion to intervene and award appropriate reliefs where the rules of natural justice have not been observed.

Quite clearly, and again it is common ground, the probe committee was investigating an enormous matter and the authorities must have apprehended that the effect of its findings was bound to have substantial B adverse impact and consequences on the interests of certain individuals. The applicant is certainly one of the people who have been detrimentally affected by the findings of the probe committee. That is patently evident from the severity of the penalties that were eventually handed out to him by the Executive C Committee and by his employer. I hold the view that the applicant, whose rights and legitimate expectations stood to be so adversely affected by the inquiry had the right to have an adequate opportunity of knowing the case he had to meet, of answering it, of putting forward his own case, and of D being fairly and impartially treated. In other words, he had the right, first, of being sufficiently appraised of the particulars of the prejudicial allegations that were to be made or had been made against him, so that he could effectively prepare his answer and collect evidence necessary to rebut the case against him; secondly, subject to the need for withholding details in order to protect other overriding interests, and in E my opinion there was none here, of being accorded sufficient opportunity of controverting or commenting on the materials that had been tendered or were to be tendered against him; thirdly, of presenting his own case; and fourthly, of being given a reasonable and fair deal.

F It matters for nothing that these were proceedings initiated by an Institute of higher learning. The weight of modern authorities is in favour of the view that disciplinary proceedings in higher educational institutions have to be conducted in conformity with natural justice, provided at least the penalty imposed G or likely to be imposed is severe; see R.v Aston University Senate, Ex. p. Roffey and Another [1969] 2 QBD 538, a decision that has been referred to by both sides; Glynn v Keele University, [1971] I WLR 487, a case of summary suspension from residence on the campus for disciplinary offence; and more helpful, H Ceylon University v Fernando [1960] 1 WLR 223, a case of disqualification from degree for alleged cheating in examination.

With due respect, it is, in my considered opinion, not an exaggeration to say that the applicant was deprived of his right. It cannot be seriously denied that there is nothing in the record that

shows that he I was appraised of the particulars of the allegations that were to be made or had been made against him. It will be
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MAPIGANO J
remembered that the probe committee carried out its assignment by scrutinizing several documents and A interviewing scores of people. I have gone through those documents and in regard to the applicant I see nothing damning in them. The record of the proceedings of the committee shows that it met on several occasions to conduct the interviews. About the only interviewee who implicated the applicant was one B Ancilla Kilinda.
This Ancilla Kilinda was also a candidate and, as the idiom goes, the canary who sang. She admitted that she had prior access to the examination papers. She stated that she had purchased the papers from Angela Mpanduji for shs.1,500/=. She disclosed that the papers she acquired were handwritten. She said C she destroyed them immediately after sitting the examinations. She was asked to examine several scripts and, according to the report of the probe committee, she singled out the scripts of the applicant, claiming that they were similar with the handwriting on the examination papers she had purchased from Angela D Mpanduji. That was a serious allegation and it was regarded by the probe committee as high-grade information and in no small way led the committee to infer that the applicant was a party to the scandal. The committee might be right. But what is objectionable is that the substance of that adverse information E was not put to the applicant at all. He had, therefore, no opportunity to deny or admit it. Of course a party cannot deny or admit that of which he is unaware. This is not to say, however, that Ancilla Kilinda was uncandid with the probe committee.
Angela Mpanduji appeared before the probe committee for interview. She did not in the least implicate F anybody, let alone the applicant. In actual fact she was not asked anything about the applicant. The information provided by one or two other candidates was in the last analysis either marginal or what they had picked up second hand and I am unable to see anything probative in it. G
On 5 April, 1984 the applicant was interviewed by the probe committee. I will set out in extenso what transpired:

Q: Can you tell us anything strange or unusual you heard about the exam before the exam was done? H

A: The students worked very hard to prepare themselves for the exams. But I heard no rumours.

Q: Do you have a study group?

A: Yes.

Q: Who are your study group? I

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MAPIGANO J

A A: I do not have any specific study group. I usually study on my own.

Q: Who in your class, have you, for example, been studying with?

A: It all depends on the topic. My group changes with the topic.

B Q: Any girls you are used to in your class?

A: I was used to Maira in first and second year and Angela Mpanduji in third year.

Q: Angela was selling exams, did she sell to you also?

C A: No. I never buy exams. I pass on my own effort.

Q: Did you know that Angela was selling exams or she had exams?

A: No.

D Q: One day you were studying in your room with some colleagues, someone came and knocked at the door. You looked him out. You were digesting an exam you had laid hands on.

A: This is 100% lie.

E Q. When Angela got the papers she was looking for someone to assist her with solutions. You assisted her.

A: That is not true.

Q: Is Angela your friend?

A: That is what people think. But she is no more than someone I study with.

F Q: But she is surely more than that to you.

A: Yes, at one stage she introduced me to her father, and I once escorted her to the airport when her sister was passing through from Seychelles.

G This interchange is drawn from pages 54 and 55 of the report of the probe committee. On a careful reading one may probably discern some inconsistencies, even evasiveness, in the answers of the applicant. But, as pointed out supra, there is, from start to end, nothing in that interview which shows that H the identification of the scripts by Ancilla Kilinda was intimated, much less announced, to the applicant.

What's more, it is plain, I think, there is nothing to show that the applicant was informed that he was one of the distribution agents of the leaked examinations, contrary to what is deposed in paragraph 7 of the I counter-affidavit. Equally plain is that there is nothing that shows that the applicant had, during the course of the interview,

1984 TLR p314

been made to understand that he was appearing before that committee to answer such a charge. And A certainly there is nothing in his answers that can validly be said to have tangibly and credibly established that he was a party to that illegal enterprise. More likely than not the applicant was one of the candidates who had access to the examinations before the due dates. However, it is well to keep in mind that the B misconduct for which he was punished was what the Acting Director described as "the commercialized distribution and propagation of the leaked examination papers and/or model answers".

It may be successfully asserted that under its terms of reference the probe committee was not expected to C conduct a disciplinary proceeding as such. It is plausibly arguable that it was only asked to investigate but not to give a binding decision. Even if that was the case, it was, in my view, still placed under obligation to observe the rules of natural justice, because it was investigating what was essentially a D serious public scandal, and since it had in its possession the resolutions of the Executive Committee, it was aware throughout that the investigation and

its report were part of a process that could terminate into action adverse to the interests of some of the interviewees, as indeed they did Re Pergamon Press Ltd. E [1971] Ch. 388, is a case in point.
In the final event this application is granted. The decision of the executive Committee is hereby quashed and the Council of the IFM is directed to award the applicant a certificate of Advanced Diploma in Accountancy. Costs are to follow the event. F

Application granted.
1984 TLR p314
G
[zRPz]IBRAHIM MESSE v REPUBLIC 1984 TLR 314 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

May 12, 1984
CRIMINAL APPEAL 5 OF 1984 H
Flynote
Criminal Law - Causing a child not to attend school regularly until completion of education by making her pregnant - Whether liable - The Primary School (Compulsory Enrolment and Attendance) Rules, 1979 G.N. 129).
Statutory Interpretation - Meaning of "... any person other than a parent ..." and "under any circumstances" causes a I child not to
1984 TLR p315
MAPIGANO J
A attend school, under the Primary School (Compulsory Enrolment and Attendance) Rules 1979.
-Headnote
The appellant had impregnated a school girl thus causing her to drop from school. He was charged with B and convicted of causing a child not to attend school regularly under the Primary School (Compulsory Enrolment and Attendance) Rules 1979. He appealed against the conviction on the ground that the rules in question apply only to parents and guardians of children who have attained a school attending age.
C Held: (i)The expression "any person other than a parent" includes people or persons such as appellant in this case and the phrase "under any circumstances" includes causing a child not to attend school by making a girl pregnant.
Case Information
D Appeal dismissed.
No case referred to:
[zJDz]Judgment

E Sisya, J.: This is an appeal against both conviction and sentence. Regarding the conviction, the appellant alleges in his petition of appeal that the learned trial magistrate erred on both matters of law and of fact. Without beating about the bush, starting with the latter, the evidence before the lower Court F leaves no reasonable doubt as to the appellant's guilt. This appeal on this aspect of the matter is, to say the least, fruitless and/or is without substance. On the evidence adduced I am satisfied, and I so find, that this appellant made one Sofia Hassani (PW2), then a pupil at Chanika Primary School in Handeni District, G pregnant and thereby made her fail to attend school.

On the legal aspect of this appeal the appellant avers in his petition, inter alia that the facts do not disclose any criminal offence that the law under which he was convicted, i.e. the Primary School (compulsory Enrolment and Attendance) Rules, 1979, GN 129 of 1979 applies only to parents and guardians of children H who have attained a school attending age and that the said law is not applicable to him except the law dealing with affiliation. All these arguments are based on a misconception of the law and they have, thus, no leg upon which to stand. For the benefit of the appellant, the provision of the law under which he was I charged and subsequently convicted

is section 4(2) of GN 129/79 (and not GN 129/73 as he himself quoted). The relevant portion thereof reads A and I quote:

(2)Any person other than a parent who, under any circumstances, causes a child not to attend school regularly until the completion of primary education shall be guilty of an offence ..... B

The 'any person other than a parent' here includes people or persons such as this appellant and the expression 'under any circumstances' includes causing a child not to attend school by making a girl pregnant. Child is defined in Section 2 of the Primary School (Compulsory Enrolment and Attendance) C (Amendment) Rules, 1982 GN 28 of 1983 as any child who has attained the age of seven but has not attained the age of thirteen and includes any child who is still pursuing primary school education." Sofia Hassani (PW3) was such child as at the time the appellant made her pregnant and she was still pursuing D primary school education.

As I think has sufficiently been demonstrated GN 129/79 is applicable to the appellant and any other person. For the avoidance of doubt the law dealing with affiliation is equally applicable to the appellant. Subject to the law of limitation it is, however, up to Sofia herself to invoke it should she so desire. E

Now, turning to sentence the maximum penalty for the offence with which the appellant stand convicted is a fine of Shs. 3,000/= and six months imprisonment. The learned trial magistrate sentenced the appellant to pay a fine of Shs. 2,500/= or, in default of payment thereof, to go to jail for nine months. He paid the fine. F The appellant is, admittedly, a first offender. In his address before sentence in the Court below he stated that he was aged 48 years; he is married with a total number of fourteen dependents including ten children. The girl whom he made pregnant and curtailed her primary education, Sofia, was aged only eighteen years G - someone

fit to be his, i.e. appellant's own daughter. As a married and grown up person one wonders that the appellant lacked to necessitate his going for a school girl. To demonstrate the odium that the society holds for such actions as that of this appellant in this matter the sentence imposed by the lower H Court was well earned by the appellant and I so hold.
Suffice it to say that after perusing the record of proceeding I am satisfied, and I so certify, that this appeal is devoid of merit and the same is forthwith summarily rejected. I
Appeal dismissed.
1984 TLR p317
A
[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v JOHN MANNING 1984 TLR 317 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mustafa JJA, Kisanga JJA and Omar JJA

August 16, 1985
B CRIMINAL APPEAL 62 OF 1984
Flynote
Criminal Practice and Procedure - Restitution order - Rightful owner of property not established - Whether proper to make any order of restitution.
-Headnote
C The appellant was charged with but acquitted of cattle theft. Meat from some slaughtered cattle was recovered by the police and sold on order of the court. A sum of Shs. 15,140/= was realized from such sale. Together with this sum the court had to make a disposal order of 10 head of cattle. The evidence adduced D did not establish the rightful owner of the cattle and the money. This notwithstanding the High Court ordered that the cattle and money be given to the appellant.
The Court of Appeal considered whether such order was tenable.
E Held: (i) Since the complainant was unable to identify the meat and nobody had come forward to claim such meat the proceeds of sale of such meat should have been forfeited to the Government;
(ii) On the evidence adduced although the prosecution had failed to establish that the complainant F was the rightful owner of the 10 head of cattle owing to the inadequacy of identification, it is equally clear that the appellant had failed to establish that the 10 head of cattle were his property;
(iii) it was unwise to make any order of restitution.
Case Information
G Appeal dismissed.
[zJDz]Judgment
Mustafa, J.A. read the following judgment of the Court: The respondent, with eight others, was charged in H the District Court with cattle theft. He was acquitted, and the Director of Public

Prosecutions appealed to the High Court against such acquittal. On the application of the Director of Public Prosecutions the I High Court ordered additional evidence to be taken under the provisions of section 151 and section 322(1) of the Criminal Procedure Code. Accordingly one Simon Mangazein testified. The

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MAPIGANO J

High Court (Mapigano, J.) heard the appeal and dismissed it. Both the courts below were satisfied that on A the crucial issue of identification the prosecution had failed to satisfy the courts that the animals, some found slaughtered and 10 found alive, were the property of the complainant P.W.2 Rashidi.

The Republic is now appealing to this court from the acquittal, on the main ground that the High Court had B erred in its evaluation of the additional evidence adduced.

We have carefully gone through the additional evidence, and while we do not agree with the first appellate judge that such additional evidence "tends to exacerbate the doubt for it tends to confirm the contention C of the first respondent (i.e. the appellant herein) that he had lawfully purchased the ten live cows", we find the additional evidence vague and inconclusive and does not add anything to the prosecution case in any way. There was evidence on which the courts below could find that the prosecution had failed to D establish its case against the appellant, and the appeal against conviction fails.

However there are two points which call for consideration. Meat from some slaughtered cattle was recovered by the police and sold on order of the court. A sum of Shs.15,140/= was realised from such sale. E The District Court ordered this sum to be returned to the appellant, and such order was confirmed by the High Court. It was in evidence that the appellant had stated that the meat did not belong to him, but possibly to some other person or persons who had used his abattoir for slaughter facilities. The F complainant was unable to identify the meat, and nobody had come forward to claim such meat. In the circumstances it was wrong to have this sum paid to the appellant. We set aside the order to pay the sum of Shs.15,140/= to the appellant, and order that the said sum, if paid to the appellant, be returned by the appellant to the court, and that the sum be forfeited to the Government. G

Similarly the District Court ordered the ten live cattle claimed by the complainant be returned to the appellant. This was confirmed by the High Court. On the evidence adduced, although the prosecution had failed to establish that the complainant was the rightful owner of the 10 head of cattle owing to the H inadequacy of identification, it is equally clear that the appellant had failed to establish that the 10 head of cattle were his property. In the circumstances it was unwise to make any order of restitution. We set aside the order returning the 10 head of cattle to the appellant. I

1984 TLR p319

A The parties could sue civilly for the cattle when the question of ownership could be determined.

In the result, apart from interfering with the order of payment of shs. 15,140/= to the appellant and the order of restitution of the 10 head of cattle to the appellant, the appeal is dismissed.

B Appeal dismissed
1984 TLR p319
C
[zRPz]HAMISI SAID MCHANA v REPUBLIC 1984 TLR 319 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Nyalali CJ, Mustafa JJA and Makame JJA

March 26, 1986
D CRIMINAL APPEAL 2 OF 1984
Flynote
Evidence - Dying declaration - Declaration made in answer to questions - None of the questions was leading question - Whether admissible in evidence.
E Evidence - Corroboration - Dying declaration - Declaration made while deceased was in fluctuating capacity to talk - Whether safe to base conviction upon it without corroboration.
Evidence - Corroboration - Corroborative circumstantial evidence - An important gap in the circumstantial evidence - Whether it can corroborate.
-Headnote
F The appellant was charged with and convicted of murder. The trial judge based the conviction on a dying declaration and corroborative circumstantial evidence. On appeal it was argued in favour of the appellant that the dying declaration was made in answer to leading questions and was therefore G inadmissible in evidence. The trial judge's finding of corroborative evidence was also attacked.
Held: (i) The dying declaration was admissible because the questions put to the deceased were not of such H a kind as to be likely to mislead him into making a false statement;
(ii) since the declaration was made while the deceased was in a fluctuating capacity to talk it would be unsafe to base conviction upon it without corroboration;
(iii) in this case there is importance in the circumstantial evidence such that it falls short of the I standard required of corroborative circumstantial evidence.
1984 TLR p320
NYALALI CJ
Case Information
Appeal allowed. A
Case referred to
1. Regina v Mitchel (1890 - 1895) Cox Cr. L. Cases. 507.
F.A. Adamjee, for the appellant B
E. Malecela for the respondent.
[zJDz]Judgment
Nyalali, C.J. delivered the following judgment of the Court: The appellant, Hamisi Saidi Mchana, was charged and convicted in the High Court at Dodoma with the offence of murder

contrary to section 196 of C the Penal Code, and was sentenced to suffer death by hanging. He was aggrieved by the conviction and sentence, and hence this appeal to this Court. Mr. Adamjee, learned advocate, appeared for the appellant before us, whereas Mrs. Malecela, learned State Attorney, appeared for the Respondent/Republic. D

From the evidence adduced by both sides at the trial, there is a broad area of agreement on primary and secondary facts between the parties. On the 2nd of May, 1982, the appellant and his nephew, namely, one Issa s/o Bakari left Bareko village together on their way home at Mitati village. While thus on their way, E they passed by the home of P.W.6: namely, Salim Bato at Pahi Village in order that the appellant could be paid some money which P.W.6 owed him. Furthermore, there is common ground that the appellant and the said Issa Bakari later left P.W.6's home on their way to Mitati village. The appellant reached safely home F that same day but his nephew Issa s/o Bakari failed to do so. It is undisputed that on the following day of 3rd May, 1981, the said Issa s/o Bakari was discovered seriously injured in a gully near a path leading from Bereko village through Pahi to Mitati village. It is also undisputed that the said Issa s/o Bakari was taken G to Bereko Health Center where he died later at night. The appellant was subsequently arrested and a post mortem examination of the body of the deceased was done by a Dr. Machalo at Bereko Health Center on the 5th of May, 1981.

From the same evidence adduced by both sides at the trial, the primary and secondary facts that are in H dispute between the parties lie within a narrow compass. The prosecution asserts that the appellant left P.W.6's home together with the deceased, and while on their way towards Mitati village the appellant attacked the deceased. The prosecution also asserts that the deceased made a dying declaration just I before he died. It is part of the prosecution

A case that the death of the deceased resulted from the injuries inflicted upon him by the appellant in the course of the attack.

On the other hand, it is the defence case that the deceased left the appellant at P.W.6's home and proceeded on the way home in the company of strangers who passed by. The appellant later followed but B he did not find or see the deceased on the way. It is part of the defence case that the deceased was attacked by a person or persons unknown to the appellant. The defence also contends that the deceased was not in a position to make a dying declaration.

There are a number of points which require consideration and decision in this case. The first and most C crucial point is whether the deceased made a dying declaration. The learned trial judge specifically considered this point and stated:

> There is also the evidence of P.W.7 Ramadhani Mjili and P.W.11 Ramadhani Issa Hamisi about the dying D declaration made by the deceased shortly before he died. The gentlemen assessors believed that evidence. I can see no reason to disagree. The evidence of the dying declaration ties up very well with the rest of the evidence for the prosecution. The deceased told these witnesses how the accused hit him as the deceased was walking in front of E the accused. It supports the evidence of P.W.9 Amina who met them and saw that the accused was walking behind the deceased. The deceased told the witnesses that the accused hit him at the

back of the head, and so the F deceased would not know what weapon was used. The deceased knew the accused and they were only the two of them walking together to Mitate. So there could be no possibility of the deceased mistaking the identity of the accused who, according to the evidence, was deceased's uncle. It was at about sunset when P.W.9 Amina met the G accused and the deceased; and the deceased was found lying a short distance away from where P.W.9 Amina had met them. There could be no doubt therefore that the deceased was assaulted by the accused when it was not yet H dark. The deceased could not, under the circumstances, have made a mistake as to the identity of his assailant and no one else was with them at the time. I hold therefore that the deceased did make the dying declaration and that he identified the accused as his assailant.

I Mr. Adamjee, learned advocate for the appellant, has attacked the finding of the learned trial judge in respect of the dying

declaration, mainly on two grounds, that is: Firstly, that the deceased was in so serious a condition that he A could not have been capable of making the alleged dying declaration; secondly, that the dying declaration is inadmissible as it was solicited by questions put to the deceased by P.W.6 and P.W.11.

Undoubtedly, the evidence produced by the prosecution shows beyond doubt that when the deceased B was discovered in the gully, he was so seriously injured and disfigured that he could not easily be identified. Furthermore, the same evidence shows that the deceased was incapable of talking from the time he was discovered at the scene up to Bereko Health Center where he was taken at about 6 p.m. However, C the evidence also shows that at about 7.45 p.m. after the deceased had been admitted at Bereko Health Center, he briefly talked to P.W.7. The evidence of P.W.7 and P.W.11 (that is, the Ward Secretary of Bereko) is to the effect that at about 11 p.m. that same day of 3rd May, 1981, the deceased was able to talk D to them at length. There is also the evidence of P.W.5 (Omari Bakari) the elder brother of the deceased who, together with the appellant and P.W.4 (the father of the deceased), visited the deceased at Bereko Health Center at about 1 a.m. during the same night. According to P.W.5, the deceased was able to briefly E say that he had been badly injured, though he could say no more. So the effect of the evidence of P.W.7, P.W.11 and P.W.5 is that the deceased was in a position to talk between 7.45 p.m. and 1 a.m.

The prosecution case is that the deceased did speak at length to P.W.7 and P.W.11 at about 11 p.m. and named the appellant as the person who had assaulted him. The defence submits that as the declaration F was made by the deceased in response to questions put by P.W.7 and P.W.11, it is inadmissible. In support of this submission, learned advocate cited the case of Regina v Mitchel, 1890 to 1895 Cox's Criminal Law Cases at page 507 where Cave, J. stated: G

> In my opinion it was not a dying declaration at all, but an examination, and it is not an examination which is admissible upon this ground, but a declaration. A declaration should be taken down in the exact words which the H person making it uses, in order that it may be possible, from these words, to arrive precisely at what the person making the declaration meant.

When a statement is not the ipsissima verba of the person making it, but is composed of a mixture of questions and answers, there are several objections open to its reception in evidence which it is desirable I should not be open in cases in

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NYALALI CJ

A which the person has no opportunity of cross-examination. In the first place the questions may be leading questions, and in the condition of a person making a dying declaration there is always very great danger of leading questions being answered without their force and effect being fully comprehended. In such circumstances the form of B the declaration should be such that it would be possible to see what was the question and what was the answer, so as to discover how much was suggested by the examining magistrate, and how much was the production of the person C making the statement. It appears to me, therefore, that a statement taken down as this was, giving the substance of the questions and answers cannot be said to be a declaration in such a sense as to make it admissible in evidence, and that document cannot be admitted upon that ground.

D The facts in Mitchel's case are quite different from the present one in that in the former case the deceased made her statement in the course of depositions being taken by an examining magistrate and in answer to numerous questions which were put to the deceased. Only the substance of the questions and E answers were recorded by the magistrate. In such a situation, Cave, J. correctly held that there was a danger of the answers given by the deceased of having been obtained by leading questions. In our F present case, the questions put by P.W.7 and P.W.11 to the deceased were certainly not leading questions. P.W.7 asked the deceased only four questions, and these were, according to him:

I asked him what happened ... I asked the deceased what weapon the accused used ... I asked the deceased if there G was any reason for the assault ... I asked the deceased if he had money ... .

The deceased made his declaration in answer to these questions. None of these can be said to be a leading question.

H According to P.W.11 he put five questions to the deceased. These were:

I asked the deceased who had injured him ...I asked the deceased why the accused had injured him so badly ... I asked the deceased if he had any money ... I then asked the deceased if he had any grievances against the accused I ... I asked the deceased why he could not defend himself.

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NYALALI CJ

The deceased repeated his declaration in answer to these questions. We agree with Mrs. Malecela that A none of these questions can be said to be a leading question.

We are satisfied that the questions put by P.W.6 and P.W.11 were not of such a kind as to be likely to mislead the deceased into making a false statement. For that reason, the dying declaration in this case is B admissible. We are satisfied that the deceased made the dying

declaration. However, in view of the condition under which the deceased made the dying declaration, that is, the fluctuating capacity to talk, we are of the view that it would be unsafe to base a conviction upon the dying declaration without corroboration. We shall therefore look for evidence C to corroborate the dying declaration.

The prosecution case depends entirely on circumstantial evidence. Apart from the dying declaration, the prosecution adduced evidence from, P.W.6, P.W.8 and P.W.9 to the effect that the deceased was seen for D the last time walking in the company of the appellant on the way to Mitate village. Can this evidence be taken to be corroborative of the dying declaration?

There was evidence adduced for the prosecution by way of a sketch plan, showing the place where the E deceased was attacked and subsequently discovered. He was attacked at point "B" on the sketch plan, which is a path leading from Pereko through Puhi village towards Mitale village. The deceased was discovered at point "A", some 10 paces from point "B". There was also evidence that a lot of blood was found at point "B". The evidence of P.W.9, was to the effect that the deceased was discovered at a point F one mile away from the place she had seen him with the appellant the previous day. This is certainly not a short distance as the learned trial judge seems to have thought. There is thus a gap, and an important gap, in the circumstantial evidence. There is the probability that the appellant was not in the company of G the deceased when he reached point "A". There is also the fact that the deceased and the appellant were close relatives who, on the evidence, were in good terms. The absence of motive for the killing of a close relative is another important gap in the circumstantial evidence. So the circumstantial evidence H before us falls short of the standard required of corroborative circumstantial evidence.

Since there is no other evidence to corroborate the dying declaration of the deceased, it is unsafe to uphold the conviction.

In the final analysis, therefore, we allow the appeal, quash the conviction, set aside the sentence and direct I that the appellant be

A released from prison forthwith unless otherwise detained therein for other lawful cause.

Appeal allowed.

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B

[zRPz]MUHUMBA KAMNYA v REPUBLIC 1984 TLR 325 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Mustafa JJA and Makame JJA

Mrch 26, 1986

C CRIMINAL APPEAL 26 OF 1984

Flynote

Criminal Law - Self-defence - Excessive force used -Unlawful.

D Criminal Practice and Procedure - Arrest - Arrest by people's militia on instruction of village chairman or committee - Whether lawful.

-Headnote

The appellant was convicted of murder and sentenced to death. He killed a militiaman by stabbing him with a knife. The deceased together with three other militiamen were sent by the village chairman to arrest E the appellant because he had not taken part in a village development programme.

One of the issues in this case was whether the militiamen were justified in going for and arresting the appellant. The trial judge held that they were. His holding was based on the provisions of the Villages F and Ujamaa villages Act, 1975 (Act 21 of 1975) and especially the "intendment" of s.12(2) thereof. On this issue the Court of Appeal differed with the learned high court judge.

Held: (i) The village chairman or the village committee or the militiamen had no power of arrest and the G President had not exercised his discretion in granting any judicial, quasi-judicial or administrative powers to the village committee in terms of s. 18 of Act 21 of 1975;

(ii) the power of arrest and the circumstances in which such power can be exercised to deprive a H person of his liberty must be clearly spelt out and cannot be deduced from any so-called "intendment";

(iii) the arrest of the appellant was unlawful;

(iv) the appellant had used excessive force in legitimate self-defence in terms of the provisions I of s. 18(B) (3) of the Penal Code.

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MUSTAFA JA

Case Information

Order accordingly. A

No case referred to.

[zJDz]Judgment

Mustafa, J.A. delivered the following judgment of the court: B

The appellant was convicted of murder and sentenced to death. He is appealing.

The prosecution case is as follows. The appellant, as a resident at Tinai Village, had not taken part in cultivating in the village development programme. The village Chairman sent four militiamen, among whom C was the deceased, on the material day, at about 4.00 p.m., to arrest the appellant and to bring him before the Chairman. The four men, all unarmed, went to the house of the appellant to arrest him. The militiamen had no letter from the Chairman, nor had they a warrant of arrest. Apparently the appellant was to be D arrested and brought before the Chairman for not participating in village development activities. Earlier the same day it appeared that the appellant was before the village committee and had refused the demand of the village committee to pay compensation ("udoba") of shs. 50/= and costs for the militiamen of shs. 25/= E ("Kilatu") arising out of his failure to participate in village development, and had left the meeting in a defiant mood.

The four militiamen went to a place where the appellant was repairing a house. When the appellant saw the four militiamen at a distance, he called out to them not to enter his compound. However the deceased F nevertheless went on in order to arrest the appellant. The other three followed. As the deceased neared the appellant, the appellant hit the deceased with stick on the thigh. Despite that the deceased held the appellant. The other three militiamen rushed forward to help the deceased. The appellant managed to free G one of his arms from the clutch of the deceased and drew out a knife from his waist. The deceased thereupon released the appellant, and all the 4 militiamen ran away. They were then inside the cattle boma of the appellant. The militiamen ran towards the exit of the boma, which was a narrow one, chased by the appellant. It appears that the deceased somehow was behind the appellant, and seized or tried to seize the H appellant. As the deceased was in that act the appellant turned and stabbed the deceased in the chest. The deceased then ran a few paces, jumped over the fence of the cattle boma, and fell a short distance away. He died shortly thereafter. According to medical evidence the cause of death was hemorrhage due I to the

A stab wound which penetrated the chest and pierced through the lung and punctured the heart. Considerable force must have been used to have caused such a wound. A sharp instrument like the knife produced in court could have caused it.

B Briefly the above account was testified to by P.W.1, P.W.2, and P.W.3, the militiamen who had accompanied the deceased in the arrest expedition and who were eye witnesses to the stabbing.

The appellant gave a different version of the events. He said that on the material day, in the morning he was sent for, and he went to the village CCM Office. He was asked why he did not participate in working C the village shamba. He alleged he was exempted from such duties because he was suffering from T.B. The CCM Office told the appellant to pay some compensation, and if the appellant did not pay that day, the appellant would be put under custody, and he was in fact kept in custody. At about 4.00 p.m. he was D given permission to go out and eat. While he was repairing his house 4 militiamen, including the deceased, arrived. He heard them say "Umekimbia mvua lakini umande hutaukimbia", and was frightened. He thereupon wanted to run back to the CCM Office. As he did so, a militiaman kicked him and he fell. It E was the deceased who had kicked him. The appellant stood up and as he had a stick, he hit the deceased on the left thigh with it. The deceased held him and the other three also attacked him. He alleged P.W.1 Danial took out a knife to stab the appellant, but the appellant managed to snatch away the knife. The F appellant realised that he himself was carrying a knife in his pocket. He pulled out his knife and the militiamen, on seeing this, scattered. The appellant remained standing waving his knife in a circle, telling the militiamen not to approach him. Three militiamen, i.e. P.W.1 and P.W.2 and P.W.3 were in front of the appellant, and the deceased was somehow standing behind the appellant. As the appellant was waving G with his knife, he suddenly found that he had struck something, and heard that some one has been

stabbed. He turned and saw the deceased running away and falling down, badly injured. The appellant then ran to a police station to report.

H The trial judge, and his assessors, considered and assessed the evidence adduced at the trial, and concluded that the prosecution witnesses, especially P.W.1, P.W.2 and P.W.3 had told the truth. In our view that conclusion was justified. We will decide the appeal on that basis.

Accepting the prosecution version of events, certain matters arise for consideration. Were the militiamen I in fact effecting an unlawful and illegal arrest? In this connection the trial judge stated:

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MUSTAFA JA

In view of the submissions by learned counsel for the defence it may now be asked whether the militiamen were A justified in going for the accused and in arresting him if necessary. I think they were. First, it will be recalled that the accused had defied the village reconciliation tribunal, in effect the village government in a matter arising from the B accused's absenteeism at shamba work. Under s. 12(1)(d) of Act No. 21 of 1975 (since repealed) village governments were enjoined to encourage village residents in undertaking and participating in communal enterprises. And under sub-sec. (2) thereof village governments had power to do all such acts and things as appeared to them to be C necessary, advantageous or convenient for or in connection with the carrying out of their functions or to be incidental or conducive to their proper discharge. I think, with respect, that giving sub-sec. (2) its true intendment, village governments had thereby been vested with power to summon and secure the appearance of uncooperative villagers D for the purpose of questioning and reconciliation. It is otherwise difficult to see how a village government could function effectively. It might perhaps be argued that this power did not include the power of arrest which is a judicial E power. I note, indeed, that under S. 18 of the Act aforesaid specific provision was made giving discretion to the President, where he considered it necessary or desirable so to do, by order to vest in a village government any power, including any judicial, quasi-judicial or administrative power, but my investigations have not revealed that the F President exercised that discretion in relation to any area. I think, however, that the absence of such an order does not vitiate the mission in the instant case, there being no evidence of an intention to arrest the accused if he had agreed to go and eschewed violence. I am therefore of the view that the village chairman properly sent for the G accused and the militiamen rightly went for him.

We find it difficult to understand this passage. Obviously, according to the evidence at the trial, the H village Chairman or the village committee or the militiamen had no power of arrest, and the President had not exercised his discretion in granting any judicial, quasi-judicial or administrative powers to the village committee in terms of sec. 18 of Act 21 of 1975. The Chairman was not otherwise vested with any powers I of arrest. The power of arrest and the

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MUSTAFA JA

A circumstances in which such power can be exercised, to deprive a person of his liberty, must be clearly spelt out, and cannot be deduced from any so-called "intendment". Clearly, therefore,

the arrest of the appellant was unlawful. Learned State Attorney for the Republic before us conceded that this was so, as B he was unable to find any legislation vesting in the village Chairman the power to arrest somebody who abstains from village communal work.

Here a show of force by the village authority is evident. Four militiamen were sent to arrest the appellant at the appellant's own home. The appellant had not committed any act which could result in his being C arrested, with or without a warrant. Before the militiamen entered his compound, the appellant had warned them not to approach. They nevertheless did so. The deceased was bent on arresting the appellant. The appellant tried to ward off the deceased by beating the deceased with a stick but the deceased and his D companions were still determined to arrest him. It was only when the appellant pulled out a knife that the militiamen scattered. Even then the deceased tried to arrest the appellant from behind. It was at that stage that the appellant stabbed the deceased. The appellant had acted in self-defence to prevent an illegal E arrest and to preserve his liberty. It was for the prosecution to justify the arrest, and no lawful justification was forthcoming.

However in this case, the appellant knew why the militiamen had come for him. He knew that his presence was needed by the village Chairman and the village committee. So the purpose of the illegal and unlawful F arrest was comparatively a minor matter. The appellant was clearly entitled to resist an unlawful arrest, but was he entitled to use a knife in the circumstances of this case? Was he justified in stabbing the deceased on the chest? The resistance should bear some relationship to the evil to be averted. Each case G has to be decided on its own facts. In our view the appellant was justified in forcibly resisting the unlawful arrest. However, we are of the opinion that the appellant had used excessive force in the circumstances. He could have chased the militiamen away, as he was in the process of doing so when he produced the knife. Even when the deceased was trying to grab him from behind the appellant could have H prevented the arrest, as the appellant was armed and the deceased was not. And the appellant well knew that all the militiamen wanted to do was to compel him, by force if necessary, to go before the village Chairman. That compulsion was of course unlawful, but it was not a matter so grave or of such great I moment as to justify the amount of force the appellant had used in repelling that attempt.

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In our view the appellant had used excessive force in legitimate self-defence, in terms of the provisions of A section 18(3) of the Penal Code.

We allow the appeal, quash the conviction of murder and set aside the sentence of death imposed. We substitute therefor a conviction of manslaughter and since the appellant has been in custody since 1983, B we sentence the appellant to 3 years imprisonment.

Order accordingly.

1984 TLR p330

C

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v SIMON G. MARWA AND ANOTHER 1984 TLR 330 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mustafa JJA, Kisanga JJA and Omar JJA

CRIMINAL APPEAL 46 OF 1984 D

Flynote

Criminal Law - Punishment - Detention ordered under Preventive Detention Act - Whether, punishment within the E meaning of section 21 of the Penal Code.

-Headnote

The two respondents were charged in the District Court with unlawful possession of a pistol and six rounds of ammunition contrary to section 8(1) of the National Security Act No. 3 of 1970. They were F convicted as charged, but the trial magistrate found that the gravity of offence warranted heavier punishment than he was empowered to impose, and so he accordingly committed the respondents to the High Court for appropriate sentence. Meanwhile the respondents appealed to the High Court against their G conviction and it transpired that at the time of such appeal the respondents were in detention under an order made under the provisions of the Preventive Detention Act (Cap. 490). The High Court dismissed the appeal against the conviction but declined to pass sentence on the grounds that the respondents had H already been punished by being detained under the Preventive Detention Act and, therefore, they should not be punished twice for the same offence. In doing so the learned High Court Judge stated that he relied on the provisions of section 21 of Penal Code which provides: I

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KISANGA JA

A A person shall not be punished twice, either under the provisions of this Code or under the provisions of any other law for the same offence.

B The Republic appealed against the refusal by the High Court to pass sentence on the respondents.

Held: (i) In order to rely on the provisions of section 21 of the Penal Code, it must be shown that an accused person has been punished under a law which creates a specific offence which can be judicially C ascertained, and prescribes a specific punishment for such an offence;

(ii) the Preventive Detention Act does not create any specific offence or offences. All that it does is to empower the President to detain a person who conducts himself so as to endanger peace and good D order or the defence and security of the State; or to prevent a person acting in a manner prejudicial to such peace and good order or the defence and security of the State;

(iii) so long as it is not possible to ascertain judicially what offence is created or committed under E the Preventive Detention Act, the question of ascertaining judicially the sanction or punishment prescribed under the said Act does not arise; therefore, a detention ordered under the Preventive Detention Act is not a punishment within the meaning of section 21 of the Penal Code.

Case Information

F Appeal allowed.

No cases referred to.

A.J. Saffari for the appellant.

G M.J. Rainthatha for the respondent.

[zJDz]Judgment

Kisanga, J.A.: The two respondents were charged in the District Court with unlawful possession of a H pistol and six rounds of ammunition contrary to section 8(1) of the National Security Act No. 3 of 1970. They were convicted as charged, but the trial magistrate found that the gravity of the offence warranted heavier punishment than he was empowered to impose, and so he accordingly committed the respondents to the High Court for appropriate sentence. Meanwhile the respondents appealed to the High Court I against their conviction and it transpired that at the time of such appeal the respondents were in detention under an order made under

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the provisions of the Preventive Detention Act (Cap. 490). The High Court dismissed the appeal against A the conviction but declined to pass sentence on the ground that the respondents had already been punished by being detained under the Preventive Detention Act and, therefore, they should not be punished twice for the same offence. In doing so the learned High Court Judge stated that he relied on the B provisions of section 21 of the Penal Code to which a detailed reference will be made later in this judgment. The Republic now appeals against the refusal by the High Court to pass sentence on the respondents. At the hearing of the appeal before us the Republic was represented by Mr. A. J. Saffari, State Attorney, while Mr. M. J. Raithatha appeared for both respondents. C

Mr. Saffari addressed us only briefly. The substance of his submission was that punishment in this context is something which follows upon a trial and conviction. It is something that follows judicial process, and it necessarily excludes extra-judicial acts including acts or orders of the Executive. In the D instant case, he contended, there was neither trial nor conviction. There was only an Executive order which was not punishment within the meaning of section 21 of the Penal Code.

Mr. Raithatha addressed us at some length. The thrust of his argument was that section 21 of the Penal E Code should be construed liberally such that detention under the Preventive Detention Act amounts to punishment within the meaning of the section. He cited some cases and sections of the Penal Code and the Criminal Procedure Code in support of his argument. F

As is already apparent from the preceding paragraphs, the point raised in this appeal is a narrow one. It is whether a detention ordered under the Preventive Detention Act amounts to punishment in terms of section 21 of the Penal Code. That section provides that: G

21. A person shall not be punished twice, either under the provisions of this Code or under the provisions of any other law for the same offence.

We think that in order to rely on the provisions of this section, it must be shown that the person in respect H of whom it is sought to do so has been punished under the law of the country which creates specific offence and prescribes specific sanction or punishment for such offence.

The law thus creating the I offence must set out the specific offence in terms such that when the issue arises, as it does

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KISANGA JA

A here, one can ascertain judicially whether it is one and the same offence for which it is being claimed that the person concerned has already been punished. Likewise the law creating the offence must also provide in definite terms the sanction or punishment for the offence such that if and when need arises one B can ascertain judicially whether the person concerned has, in fact, been duly punished in accordance with the law creating the offence.

It is against this background that we have to look at the relevant provisions of the Preventive Detention Act under which it is contended that the respondents had already been punished for being in unlawful C possession of a pistol and six rounds of ammunition. For the present purposes, the relevant provision of the Preventive Detention Act is section 2(1) which provides that:

2-(1) Where -

D (a) it is shown to the satisfaction of the President that any person is conducting himself so as to be dangerous to peace and good order in any part of Tanganyika or is acting in a manner prejudicial to the defence of Tanganyika or the security of the State or

E (b) The President is satisfied that an order under this section is necessary to prevent any person acting in a manner prejudicial to peace and good order in any part of Tanganyika, or to the defence of Tanganyika or the security of the F State, the President may, by order under his hand and the Public Seal direct the detention of the person.

A glance through this sub-section shows that the provision does not create any specific offence or offences. All that it does is to empower the President to detain a person who conducts himself so as to G endanger peace and good order or the defence and security of the State; or to prevent a person acting in a manner prejudicial to such peace and good order or defence and security of the State. It has to be H acknowledged that there are numerous ways in which a person may be considered to conduct himself so as to endanger or to be prejudicial to peace and good order or the defence and security of the State. It is equally true that it is often difficult, if not impossible, in practice to know exactly why a person has been detained. More so because the decision to detain is purely subjective depending on what the President I considers to be conduct which is dangerous or

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prejudicial to peace and good order or the defence and security of the State. A

This point may be illustrated by the facts of the present case. At the hearing of the appeal in the High Court the respondents alleged that they had been detained, and were still in detention, for the same offence. Whereupon the learned judge hearing the appeal investigated the matter, and his findings and B conclusion are summarized in the following lines of his judgment:

As for sentences to be imposed the Court had to investigate the authenticity or otherwise of the accuseds' allegation C that they were also being held under the Preventive Detention Act

- Cap 490 of the laws for the same offence. A letter ref. No. P. 220/180/7 dated 11/7/84 from the Principal Secretary Ministry of Home Affairs addressed to the Registrar in response to the latter's letter No. HCCC/C.170/4/30 of 2/7/84 says inter alia: D

Ni kweli kuwa washitakiwa hawa waliwekwa kizuizini kwa amri ya Rais ya tarehe 10/3/1981 na hadi sasa bado wakochini ya amri hiyo kwa sababu za usalama wa taifa kwa ujumla. E

After saying that the appellants are known to be bandits the letter continues: F

kama uonavyo kuwekwa kwao kizuizini ni katika kuwazuia wasiendelee na vitendo vyao vinavyoharibu usalama wa Taifa.

That being the reply from the Ministry of Home Affairs it is crystal clear that the appellants have been detained G because they are believed to be bandits. I have no quarrel with their being detained under the Preventive Detention Act although it could be argued as to whether the Preventive Detention Act, Cap. 490, was meant to cater for offences covered under the Penal Code, Cap. 16 of the Laws! H

However bearing in mind that the accused persons have already been punished for the offence of being in possession of offensive weapons by being detained; it will be contrary to the clear provisions of section 21 of the Penal Code for I this

A Court to impose another sentence over and above the punishment of detention which the accused are still serving.

Upon reading the whole extract, one gets the clear impression that the respondents were detained on B grounds of national security generally; they were known or believed to be bandits and therefore their detention was an attempt to prevent them from continuing with their activities which disturb the security of the nation. Yet the learned High Court judge found that the respondents by being thus detained, had C already been punished for being in unlawful possession of offensive weapons. The position is by no means easy. It seems to us that on the information available it is not clear what exactly the respondents had been detained for. It may very well be that, as the Principal Secretary, Ministry of Home Affairs said in his letter referred to by the learned judge, the respondents as persons who were known or believed to be D bandits were detained simply as a measure designed to prevent them from continuing their mischievous activities in the society. If that is so it would seem plain that such detention was purely preventive in the sense that it was intended to prevent the respondents from committing possible offences. As such it E could not properly be regarded as a punishment imposed on the respondents specifically for being in unlawful possession of a pistol and six rounds of ammunition.

So long as it is not possible to ascertain judicially what offence is created or committed under the F Preventive Detention Act, the question of ascertaining judicially the sanction or punishment prescribed under the said Act does not arise.

In these circumstances we agree with the submission by the learned advocate for the Republic that the learned High Court Judge erred in refusing to sentence the respondents on the ground

that they had G already been duly punished for the same offence. For the reasons stated above we are firmly of the view that detention ordered under the Preventive Detention Act is not punishment within the meaning of section 21 of the Penal Code. Accordingly we allow the appeal by the Republic, set aside the decision of H the High Court refusing to sentence the respondents, with a direction that the respondents now be brought before the High Court for sentencing. We would add that in deciding on what appropriate sentence to impose, we think that the court would be perfectly entitled to take into account the term which I the respondents have or had served in detention under the Preventive Detention Act.

Appeal allowed.

1984 TLR p336

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[zRPz]MWIHAMBI LUMAMBO v REPUBLIC 1984 TLR 336 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Mustafa JJA and Makame JJA

March 26, 1986

CRIMINAL APPEAL 27 OF 1984 B

Flynote

Criminal Practice and Procedure - Insanity - When section 168A of the Criminal Procedure Code may be invoked.

-Headnote

The appellant killed his eight month old daughter in the presence of the deceased's mother for no apparent C reason. Then he attempted to commit suicide by hanging himself. He was convicted of murder by the High Court. He appealed arguing that it should have appeared to the trial judge that he may have been insane.

Held: (i) The evidence available did not make it appear to the trial court that the appellant may have been D insane;

(ii) in the circumstances we are not entitled to fault the fact that it did not appear to the trial court that the appellant may have been insane.

Case Information

Appeal dismissed. E

No case referred to.

Mr. Raithatha, for the appellant

A. J. Saffari, for the respondent F

[zJDz]Judgment

Makame, J.A. delivered the following judgment of the court: The appellant Mwihambi Lumambo was a grandfather with a menage of four wives and seventeen children. He got himself involved with P.W.1 G Mseyi Simango, a Std. VI pupil, as a result of which P.W.1 bore him a child, a baby-girl called Seche. Seche was only eight months old when she got killed in

presence of her two parents. Following his trial by the High Court sitting at Dodoma (Maina, J.), the child's father, the appellant, was found guilty of murdering H the little girl and was consequently sentenced to suffer death by hanging. He is appealing to this court and is being represented by Mr. Raithatha, learned counsel. On behalf of the respondent Republic Mr. Safari, learned State Attorney, is resisting the appeal. I

1984 TLR p337

KISANGA JA

A In his own Memorandum of Appeal the appellant urged that the killing was in fact accidental and that P.W.1 was influenced into testifying falsely against him. In his supplementary Memorandum Mr. Raithatha urged that the learned trial judge erred in not inquiring into the issue of the appellant's insanity, B and he argued the point before us.

The evidence adduced at the trial showed that the appellant and P.W.1 were very fond of each other and that the appellant clearly loved the deceased. It also showed that the appellant was a placid person of even diposition. Mr. Raithatha urged that in view of that and in the absence of motive the killing was C inexplicable and P.W.1's credibility should have been considered more carefully. The trial court should have delved into the possibility that the appellant was temporarily insane and Mr. Raithatha drew our attention to some portions of the testimony of P.W.2 Moses Libanaga, at the material time the CCM D Branch Secretary of Ndurugumi Village, Mpwapwa District, where the death occurred. P.W.2 said:

> People were pouring water on accused till he resumed consciousness. I asked if he recognized me. He said he did. I E asked what he did but he said that all he remembered was that some people were grabbing the deceased from him and that he threw the deceased under a bed to save the child from death. I told him that the child had died.

And P.W.1 Mseyi said that there was no quarrel between her and the accused. I thought the accused was confused F mentally when he did the act and so I sent him to police Station.

G Only the appellant and P.W.1 were present when the child got killed. We respectfully agree with Mr. Raithatha that the evidence was that the appellant and P.W.1 were on such good terms. It is for the same reason that we, on our part, cannot imagine why P.W.1 should want to testify falsely against her child's father and a man she obviously loved. We are unable to accept the appellant's contention that P.W.1 was H persuaded to lie against him. We note, on the other hand, that P.W.1 was quite fair and she said a lot of good things about the appellant - that he had always been good to her and that he very much loved the child. We are satisfied, as was the learned trial judge, that P.W.1 was a witness of truth.

I According to P.W.1, who was still living in her parent's homestead, the appellant was visiting her that fateful afternoon. He

1984 TLR p338

KISANGA JA

told her he was going into the house she was occupying and when she went there she found that had A locked himself in. He opened for her and followed her into the bedroom where he asked her if she loved him. She told him she did, whereupon the deceased announced that he would kill the child and then commit suicide. P.W.1 asked him why he would want to do that, but

appellant merely repeated what he B had said. P.W.1 tried to run away but the appellant caught up with her, knocked her down, slapped her and grabbed the child from her. Then, "The accused held the deceased's arm and one leg and he hit the deceased on a bed leg twice. The deceased cried out only once and then kept quite. I ran away from the house and I raised alarm". C

When people went to the house in answer to P.W.1's cries they found that the door had been secured from inside. They broke it open and found the appellant dangling from a rope. The little girl's dead body was under a bed. D

In his evidence in court the appellant gave a significantly different version. He said that when P.W.1 found him in the house she made the fire and then said she was going back to a local dance which was going on in the village and where she had been. He called her to the bed, to talk to her, but instead she E walked past him and wanted to go out. He grabbed the khanga P.W.1 was using to carry the deceased on her back. The khanga gave in, and the child fell off, hitting her head on the leg of the bed. The deceased bled from the nose and died in the appellant's arms. When he found this the appellant became so sad that he decided to end his life. He tied a rope on the beam of the house and hanged himself. He did not know F what else happened until he regained consciousness

As we have said, we find P.W.1's version credible and it was the one accepted by the trial court. Going by it, the appellant announced before hand, despite P.W.1's assurance that she still loved him, that he G would kill the deceased and then kill himself. So he had made the decision. The medical report, that the deceased's skull had sustained two fractures, would seem to support P.W.1's assertion that the appellant hit the deceased's head twice on the head, and tend to disprove the appellant's version of accidental fall. H Bashing a little child's head so violently can only have been intended to cause death or grievous bodily harm.

Mr. Raithatha has canvassed the idea that the question of the appellant's mental condition should have been gone into in view of P.W.2's evidence above quoted. As Mr. Safari rightly pointed out, that I evidence was the only suggestion on record that the appellant

A was insane. However Mr. Safari eventually conceded that the learned trial judge should have referred the appellant to a Mental Hospital.

B The relevant section in Criminal Procedure Code would be Section 168A, because here no evidence was given of the appellant's insanity for it to come under Section 168A(1). Under the said section 168A, the trial court May adjourn the proceedings and order detention in a mental hospital for medical examination, but only if it appears to the court that the person charged may have been insane. The learned trial judge directed his mind on the matter and remarked:

C The accused does not raise the defence of insanity and I found no evidence that he was in any way insane.

So the position here is that it is on record that it did not appear to the judge that the appellant may have D been insane etc. What both learned counsel are urging us, in effect, is to hold that it should have appeared to the learned trial judge that the appellant may have been insane.

With respect, we do not think we have enough material on record that would compel us to hold so. The scanty assertion by P.W.2 was not sufficient evidence to make it appear to the trial court that the appellant may have been insane etc. E This man was recovering from an unsuccessful attempt to kill himself and he might have been suffering a hallucination after his stupor. On the other hand he might have wished to say something to prepare the ground for his future defence. We do not know. What we do know is that we are not entitled, in the F circumstances, to fault the fact that it did not appear to the trial court that the appellant may have been insane. We are also aware that the learned trial court did not put the issue of insanity to the gentlemen assessors. Insanity was not raised by the Defence, and the learned trial judge found no evidence of insanity at all.

G Mr. Raithatha wondered why the appellant should have decided to kill his little girl. We may wonder also but then, "wonders are many, but the greatest of them all is Man".

The conviction of the appellant was in our view sound, on the evidence, and so we dismiss the appeal.

H Appeal dismissed.

1984 TLR p340

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[zRPz]WILSON NYAMHANGA v REPUBLIC 1984 TLR 340 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Mustafa JJA and Makame JJA

March 26, 1986

CRIMINAL APPEAL 37 OF 1983 B

Flynote

Criminal Law - Murder - Malice aforethought - Stabbing followed by words "you must die today" took place in heat of passion generated by fight and commotion - Whether premeditated killing. C

-Headnote

The appellant, a prisoner, killed an inmate at Isanga Prison. The deceased was fighting with a fellow prisoner. A commotion ensued. During such commotion the appellant stabbed the deceased and uttered words to the effect that the deceased had to die on that day. The trial court found that all the ingredients D of the offence of murder, including malice aforethought, were established and convicted the appellant of murder. On appeal it was argued whether given the fight and the commotion malice aforethought could be said to have been established. E

Held: The stabbing by the appellant took place in the heat of passion generated by the fight and commotion; although at one point of the fight and commotion the appellant told the deceased "Lazima ufe leo", that is, "you must die today", that statement by itself is not evidence of premeditated killing, since F the statement was made in the course of, and during, the fight and commotion and not before.

Case Information
Appeal allowed.
No case referred to.
E. Malecela, for the republic
M. Mlaki, for the appellant
[zJDz]Judgment
Nyalali, C.J. delivered the following judgment of the court.
The appellant, Wilson Nyamhanga Marwa, was charged and convicted in the High Court at Dodoma with the offence of murder contrary to section 196 of the Penal Code, and was sentenced to suffer death by hanging. He was aggrieved by the conviction and sentence, hence this appeal to this Court. Miss Mlaki of the Tanzania

1984 TLR p341

NYALALI CJ

A Legal Corporation appeared for the appellant, whereas Mrs. Malecela, learned State Attorney, appeared for the Respondent/Republic.

From the evidence adduced at the trial from both sides, there is a wide area of agreement between the parties. It is common ground that on the 27th of April, 1980, during the day time, there was a commotion at the Isanga Prison, Dodoma, triggered off by a fight between one Senge Senge and one Ramadhani Iddi. The appellant, who was a remand prisoner, and one of the remand prison leaders became involved in the commotion. The said Senge Senge was a convict serving his sentence of imprisonment at the prison. In the course of the fight and the commotion, the said Senge Senge was stabbed with a knife. He was later rushed to the hospital on the same day where he died. A post mortem examination was performed upon his body the following day, that is 28th April, 1980. The appellant and the said Ramadhani Iddi were taken by the prison warders to the Dodoma Police Station. Among the prisoners who were present when the fight and the commotion occurred were P.W.4, that is, Severin Rashidi and P.W.5, that is, Hashim Selemani.

From the same evidence adduced by both sides at the trial, the area of disagreement appears to lie within a narrow compass. The prosecution asserts that while the deceased was fighting with the said Ramadhani Iddi, the appellant appeared from one part of the prison compound and went to stab the deceased with a knife with a declared intention to finish him off that day as he was a troublesome person in the prison. The prosecution further contends that the deceased died as a result of the wound inflicted upon him by the appellant.

On the other hand, the defence contends that the appellant did not join in the fight and commotion, but intervened to put a stop to the fight between the deceased and the said Ramadhani Iddi. The deceased was annoyed by this intervention and he produced a knife with which he attempted to stab the appellant. The appellant managed to deprive the deceased of the knife by kicking it off from the deceased's hands, as a result of which it flew and landed in a crowd of prisoners nearby. The deceased went to fetch the knife only to emerge later from the crowd injured and bleeding, apparently, after being stabbed by somebody unknown among the crowd.

The first point for consideration and decision in this case is whether the appellant stabbed the deceased. I The learned trial judge considered this point and stated:

1984 TLR p342

NYALALI CJ

It follows from the foregoing, and I have so stated, that I believe as true the evidence of P.W.4 and PW.5 on the A accused's role. Not only were they in a position to testify to the events, they also impressed me as merely anxious to serve the course of justice. I therefore find that the accused arrived at the scene and first stabbed the deceased in the back. Admittedly, the back wound does not feature in the evidence of the doctor or the post mortem report, but the B accused impliedly confirmed its existence when he stated that he saw blood on the deceased's back. I also find that after the stab in the back the accused went on to stab the deceased on the forehead and in the neck. C

The learned trial judge correctly observed, in another part of his judgment, that the prosecution case depended on the credibility of P.W.4 and P.W.5, whom he found to be truthful witnesses. There are, D however, certain discrepancies between the evidence of P.W.4 and P.W.5 which the learned trial judge failed to consider. According to P.W.4 the fight involving the deceased and the said Ramadhani Iddi had ceased when the appellant appeared and went straight to strike Senge Senge in the back. In the struggle E that followed, the appellant further stabbed the deceased on the face, left arm and the neck. P.W.5, however, stated that the fight between the deceased and the said Ramadhani Iddi was still continuing when the appellant appeared and went to stab the deceased in the back. The appellant later followed this F by stabbing the deceased in the head and neck. There is no mention of the stab on the left arm. There are, thus, discrepancies concerning the situation in which the deceased was when he was stabbed by the appellant, and also concerning the parts of the body where the appellant inflicted the injuries.

We are satisfied, however, that these discrepancies can be explained. It is common ground that there G were a lot of convicts and remand prisoners present when the fight and the commotion occurred. In those circumstances of the commotion involving so many prisoners, it is unlikely for a witness to see clearly all the sequence of events without interruption. Added to this, is the fact that P.W.4 and P.W.5 were not H observing the occurrences from the same vantage point. After all, P.W.4 was a convict prison leader in charge of a queue of remand prisoners, whereas P.W.5 was an ordinary convict sitting or standing among his fellow convicts. We are satisfied that these are the reasons for the discrepancies which do not I therefore undermine the credibility of P.W4 and P.W.5.

1984 TLR p343

NYALALI CJ

A The appellant's suggestion that the deceased could have been stabbed by someone else while he retrieved the knife from the crowd is unacceptable, in view of the evidence of P.W.4 and P.W.5. These witnesses had no reason at all to lie against the appellant. After all, it was common ground that the B deceased was a troublesome person and a nuisance to everyone in the prison. The appellant seems to have done an act which was popular to the inmates including

P.W.4 and P.W.5. The learned trial judge was of the same view when he stated in one part of his judgment that:

C I am of the view that if the deceased was so hated, and the witnesses apparently welcomed his death, they could only have spoken the truth when they testified in the deceased's favour. On the other hand, there was no allegation of mutual grudges between the witnesses and the accused. They were convicts, he was a remand, and perhaps the D only time they met was at meal times. They therefore had no cause falsely to testify against the accused, least of all when he had done them an apparent service by eliminating a hated man. Even for these reasons alone I can say E with perfect conviction that the witnesses testified to the truth.

We concur with the learned trial judge and find as he did, that it was the appellant, and no one else, who stabbed the deceased with a knife.

F The next point for consideration and decision in this case is whether the deceased died as a result of the stab wounds inflicted by the appellant. The learned trial judge considered this point and in the light of the evidence found little difficulty in coming to the conclusion that the deceased died as a result of the injuries G inflicted by the appellant. There was medical evidence and the evidence of P.W.4 and P.W.5 to support such conclusion. Nothing has been raised in this case, and we can find no reason to make us differ from the conclusion of the learned trial judge on this point. We also find that the deceased died as a result of H the stab wounds inflicted by the appellant.

The next point for consideration and decision in this case is whether the appellant had malice aforethought I in inflicting the fatal injuries upon the deceased. The learned trial judge considered this point and stated:

1984 TLR p345

NYALALI CJ

There was no provocation properly so called nor can it be said that the accused acted to save Ramadhani's life. He A acted simply to punish the deceased. Further, it is evident that the attack and its accomplishment were specifically intended to cause death. When the accused stabbed in the neck he also declared: 'Lazima ufe leo'. And when he B realised the inefficiency of his crude weapon he exerted his might, forcing the weapon deeper and deeper into the neck, undoubtedly to exact the desired effect. I have considered the views of the second assessor but, most respectfully, I must disagree. A person cannot get away with murder because he fears that his victim, if left alive, C might in future take revenge. To adopt that view would be licensing chaos and death and we would be back to a state of nature. The instant case was a case of irreducible murder. D

In considering the evidence and the finding of the learned trial judge, one must bear in mind the common ground that the stabbing occurred in the course of a fight and a commotion involving the deceased, Ramadhani Iddi and the appellant. There is thus every ground to suggest very strongly, that the stabbing E by the appellant took place in the heat of passion generated by the fight and commotion. Although at one point of the fight and commotion the appellant told the deceased "Lazima ufe leo", that is, "you must die today", that statement by itself is not evidence of premeditated killing, since the statement was made in the course of, and during, the fight and

commotion and not before. The appellant could have uttered the F statement as an expression of his raging passion. The position would have been different if the words were said before he joined the fight. We share the doubts entertained by one of the assessors who sat with the learned trial judge, and we find that malice aforethought was not proved in this case. But since it appears G from the evidence that there was no legal justification for the killing of the deceased, the appellant is liable to conviction for the lesser offence of manslaughter. As the appellant was responsible for assisting to maintain law and order in the prison in his capacity as a remand prisoner leader, he deserves a severe H sentence. We shall take into account the fact that the appellant had been in custody in respect of this case since 27th April, 1980.
In the final analysis, therefore, we allow the appeal by quashing the conviction for murder and setting I aside the sentence of death by hanging and instead substituting therefor a conviction for

A manslaughter contrary to section 195 of the Penal Code, and we sentence the appellant to ten (10) years' imprisonment.
Appeal allowed.

1984 TLR p345

B
[zRPz]REPUBLIC v ELIPHAS JACOB 1984 TLR 345 (HC)

Court High Court of Tanzania - Dodoma
Judge Maina J

April 21, 1983
C CRIMINAL REVISION 4 OF 1983
Flynote
Transport Licensing Act, 1973 - Charge under s. 10(1)(a) -Charge does not state whether goods carried were for D hire or in connection with accused's business - Whether offence disclosed. -Headnote
The accused was convicted, on his own plea of guilty, of using a motor vehicle to carry goods in E connection with business. The charge was laid under s.10(1)(a) of the Transport Licensing Act, 1973. The facts as stated by the prosecution and which the accused admitted did not indicate whether the goods were for hire or in connection with the accused's business.
F Held: In order to convict a person under s.10(1) of the Transport Licensing Act, 1973 it must be established that the goods were for hire or reward.
Case Information
G Conviction quashed.
No case referred to.
[zJDz]Judgment

Maina, J.: The accused was convicted, on his own plea of guilty, of using a motor vehicle to carry goods H in connection with business. He was conditionally discharged, under S.38 of the Penal Code, for a period of six months.

After the charge was read over to him, the accused stated "It is true". The facts as stated by the prosecution and which the accused admitted were these. On 17.4.82 the accused was driving an Isuzu I tipper and he was stopped by a Police Constable who found that the accused was "carrying goods without TLB licence." There is no

1984 TLR p346

indication anywhere in those facts what those goods were and whether they were in connection with the A accused's business, or whether they were for hire. The charge against the accused was laid under Section 10(1)(a) of the Transport Licensing Act, No.1 of 1973 which states that: B

Subject to the provisions of Sub-Section (6) no person shall, except under or in accordance with the terms of a licence -

(a) use a goods vehicle or a public service vehicle for the carriage of goods for hire or reward or for or in connection C with any trade or business carried on by him.

Now, the facts as stated by the prosecutor did not show whether the goods carried by the accused were for "hire or reward" or whether they were "in connection with business carried on by him". The fact that D accused had no licence is not enough to convict. All that the facts showed were that the accused carried goods in the vehicle. That was not enough to convict him under section 10(1) of the Transport Licensing Act, 1973. The facts should have gone further and establish whether the goods were for hire or reward or E whether they were in any way connected with the accused's business. Since this was not disclosed, the facts were not enough to establish the offence charged.

For these reasons, the conviction is quashed and the order of conditional discharge is set aside. F

Conviction quashed.

1984 TLR p346

G

[zRPz]REPUBLIC v ANDREW MASSY 1984 TLR 346 (HC)

Court High Court of Tanzania - Dodoma
Judge Maina J

April 25, 1983
CRIMINAL REVISION 5 OF 1983 H
Flynote
Criminal Practice and Procedure - Pleas - Plea of guilty to a charge - Facts at variance with the offence charged - Whether conviction can stand. I

1984 TLR p346

MAINA J
-Headnote

A The accused was charged with driving a motor vehicle without a valid driving licence contrary to section 19(1) of the Road Traffic Act, 1973. He pleaded guilty to the charge. When the facts were read out they showed that the accused was stopped and asked to produce a driving licence which he did not B produce. The case file was called for revision.

Held: (i) Since the facts were at variance with the offence charged the conviction cannot stand;

C (ii) failure to produce a valid driving licence is a different offence from one of driving without a valid driving licence.

Case Information

Order accordingly.

D No case referred to.

[zJDz]Judgment

Maina, J.: The accused Andrew Massy appeared before the District Court at Singida on a charge of driving a motor vehicle on the public road without a valid driving licence. He pleaded "guilty". When the facts were read out, they showed that the accused was stopped driving a motor vehicle and he was asked E to produce a driving licence but he did not produce any licence. The accused admitted those facts, he was convicted of the offence as charged and he was sentenced to five Shs.500/= which he paid.

The charge against the accused was driving a motor vehicle without a valid driving licence which is an F offence under section 19(1) of the Road Traffic Act, 1973. But the facts which the accused admitted were that he failed to produce a driving licence when requested by the Police Officers. That was a different offence under section 77(1) Road Traffic Act. The facts therefore were at variance with the offence G charged. A person may have a valid driving licence but fails to produce it. That is a different offence from one of driving without a valid driving licence.

Since the facts did not establish the offence charged, the conviction cannot stand. Accordingly the H conviction is quashed and the sentence is set aside. The accused is to be retried before another magistrate of competent jurisdiction.

The fine which accused paid should be refunded to him.

I Order accordingly.

1984 TLR p348

A

[zRPz]KANGAULU MUSSA v MPUNGHATI MCHODO 1984 TLR 348 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

July 13, 1984

CIVIL CASE 8 OF 1983 B

Flynote

Civil Practice and Procedure - Attachment order - Objection to attachment order - Objection by a person not mentioned in the warrant of attachment - Allowed.
Civil Practice and Procedure - Attachment order - Dissatisfaction with a warrant of attachment - Whether a person C may bring a fresh suit where he could also have proceeded by way of objection.
-Headnote
The defendant attached the plaintiff's cattle in execution of a court decree. The plaintiff opened a fresh D suit in the High Court instead of proceeding by way of objection in the court which ordered the attachment. It was argued that the attachment was unlawful and a trespass since the plaintiff was not E mentioned in the attachment warrant. It was further argued that it was proper to bring a fresh suit because the plaintiff was not involved in any way in the suit which led to the attachment warrant.
Held:(i) As a matter of practice a person may bring a fresh suit where he could also have proceeded by way of objection;

(ii) the court has discretion to entertain or not to entertain a suit which could be brought by way of F objection depending on the circumstances of each case;

(iii) any person aggrieved by the execution of a decree may object to the court which passed the decree and that covers the plaintiff. G
Case Information
Suit dismissed.
No case referred to. H
G. Alimwike, for the plaintiff.
[zJDz]Judgment
Lugakingira, J.: This was a suit founded on tort, it being alleged by the plaintiff that the defendant unlawfully attached his cattle in execution of a decree passed by the District Court of Dodoma in Criminal I Case No. 122 of 1981, to which he

1984 TLR p349

LUGAKINGIRA J

A (the plaintiff) was not a party. The question posed by this court and argued this morning was whether the plaintiff should not have proceeded by way of objection in the court which ordered the attachment.

B Mr. Alimwike who appeared for the plaintiff argued that the attachment was unlawful and a trespass since the warrant of attachment was directed to one Sasine Mnama, the accused in Cr. Case No. 122 of 1981, and not the plaintiff. He said, therefore, that there was no warrant of attachment as far as the C plaintiff's cattle were concerned and therefore no need to object to the court which issued the warrant. The defendant who appeared in person countered this by saying that the cattle he attached were in fact those of the judgment - debtor, Sasina Mnama, and that they were handed to him by the plaintiff. He was surprised that the plaintiff had since changed his mind on the matter.

D I am aware that a person may bring a fresh suit where he could also have proceeded by way of objection. This is not a statutory rule but it seems to be accepted in practice. That being so, it

means that the court is vested with discretion to entertain or not to entertain a suit which could have been brought by E way of objection, depending on the circumstances of each case. The circumstance of this case do not reveal any grounds upon which it would be more to the advantage of the parties nor that justice would be better served for this court to take over a matter in which the District Court has jurisdiction by way of objection. Whether the plaintiff was named in the warrant of attachment or not is beside the point. The F statutory rule is that any person aggrieved by the execution of a decree may object to the court which passed the decree and that covers the plaintiff.

There should also be some order and sanity in the institution of proceedings. Where a matter has started G in one court it is proper for that matter and the resultant effects to be concluded in that court.

If anyone is still aggrieved, there is of course a right of appeal. But for a higher court to take up such a matter directly just because practice permits it, is to import disorder in the administration of justice and I am H personally not prepared, where I can help it, to be a party to such disorder.

In the circumstances, I am not satisfied that Mr. Alimwike has raised sufficient grounds upon which to dispense with the jurisdiction of the Court which ordered the attachment. I also think that in the circumstances of this case, the matter can only be properly and speedily dealt with by the District Court, I and full justice can only be obtained there. I say that full justice can only be obtained there

1984 TLR p350

because if the plaintiff were to succeed in this court, and an order were made for the restoration of the A cattle, the defendant would have to go back to the District Court to obtain another warrant of attachment. This Court cannot issue one. If the plaintiff thinks he can succeed, therefore, let him succeed in the District Court which also has the power to bring the matter to a logical conclusion. B

For these reasons, the suit is struck out. The plaintiff is at liberty to proceed by way of an objection in the District Court. I make no order as to costs since this matter was raised by this court.

Suit dismissed. C

1984 TLR p350

D

[zRPz]RUGARABAMU ARCHARD MWOMBEKI v CHARLES KIZIGHA AND THREE OTHERS 1984 TLR 350 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Mtenga J

CIVIL CASE 83 OF 1979 E

Flynote

Torts - Defamation - Damages - Defendants published of the plaintiff false information without lawful justification or excuse -Plaintiff arrested, detained and interrogated - Plaintiff's business dwindled - General public shunned him - Whether general damages awardable. F
Torts - Damages - Assessment of - Assessors of unanimous view that Shs. 470,400/= be awarded - Plaintiff's failure to show how much he was earning after publication of the offending article - Plaintiff's failure to produce books of accounts to prove what he actually earned before publication of the article - Plaintiff had opportunity to mitigate G the damage - Whether assessor's view correct.
-Headnote
The plaintiff claimed general damages in the sum of Shs. 1 million for defamatory information published of H him by the defendants. The assessors were of the unanimous opinion that general damages in the sum of Shs. 470,400/- be awarded. The plaintiff did not show to what extent his business suffered after the publication of the offending article in the Daily News newspaper, nor did he produce his books of accounts to substantiate his claim. I
1984 TLR p351
MTENGA J
A Held: Since the plaintiff has not told the court how much he has been earning in his various businesses before and after the publication of the offending article, assessment of damages cannot be based on his unsubstantiated figures which appear to be exaggerated.
Case Information
B Plaintiff awarded Shs. 200,000/-
Case referred:
1. East African Standard v Gitan [1979] E.A. 678
C Mbuya, for the plaintiffs
Banturaki, for the defendants
[zJDz]Judgment
Mtenga, J.: The plaintiff in this case is a businessman and he is suing the three defendants for damages D for libel. The first defendant is employed by the second defendant. The second defendant is a registered Company incorporated under Cap. 212 of the laws of Tanzania, and he is the proprietor of "The Daily News" which is a National Newspapers. The third defendant is a Limited liability Company incorporated E under Cap. 212 of the Laws of Tanzania and he is the publisher of the second defendant's Newspaper - "The Daily News."
The libel complained of what was contained in an issue of the "Daily News" owned by the second defendant of 13th day of August, 1976 and it was written by one Charles Kizigha the first defendant who F was an employee of the second defendant and it was printed and published by the third defendant and it reads as follows:
.... Bank rejects Charcoal Export application.
By Charles Kizigha.
G The Bank of Tanzania has rejected applications of the Officials of an unregistered firm - Tanzania Charcoal Dealers - who wanted foreign exchange to go to Iraq to negotiate Charcoal trade, it was learnt yesterday.

H The Officials were named as Ndugu Rugarabamu Archard Mwombeki and Ndugu Mohammed.

The documents at the Bank of Tanzania revealed that the two people have been corresponding through the Iraq I Embassy in Dar es Salaam with charcoal dealers in Iraq.

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They are reported to have assured Bank officials that they had a lot of charcoal to export to Iraq, Bank sources said. A

An official from the office of the Registrar of Companies said that "We have just received an application for registering the firm and we are still considering it." The forms were submitted on August, 9, this year B and a receipt number N. 916141 was issued after a payment of Shs. 45/00 as fees was made.

The partners of the Tanzania Charcoal Dealers were Ndugu Tonny Wilson Sindano who stays in Upanga Road at Plot Number 71 and Ndugu Rugarabamu Archard Mwombeki residing in Kinondoni Block Number C 31 house Number 15 D, the forms indicated.

It was further indicated that the company would deal with charcoal and other related products. The offices of the company are at Mosque/Libya Streets on Plot Number 1809/88. D

The Principal Secretary in the Ministry of Trade, Ndugu A.G. Cheyo, said, "I have heard of the Company but the Ministry has not yet been informed officially about its existence nor its nature of business." The innuendo averred by the plaintiff in para 7 and 8 of the plaint was: E

7. (a) That the plaintiff was operating a firm that is not registered contrary to the laws of the country,

(b) That the plaintiff by operating a company that is not registered was committing an offence, F

(c) That the plaintiff by dealing with Iraq Embassy officials showed that his dealings were suspicious and/or illegal,

(d) That the plaintiff managed to go through to the Bank of Tanzania without the knowledge of the Ministry of Trade,

(e) That the plaintiff was hoarding charcoal in the country. G

8. Or in the alternative, the said words meant and were understood to mean:

(a) That the plaintiff was a Criminal,

(b) that the Plaintiff is a bogus unscrupulous and dishonest businessman H

(c) That the plaintiff was a saboteur of our economy by draining the country's foreign exchange for personal use or advantage.

Furthermore, the plaintiff claims that in consequence thereof, he has been seriously injured in his I character, credit and reputation

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A in the way of his business, and he has been brought into public scandal, odium and contempt and he has suffered damage.

On the other hand, the three defendants through the services of their advocate Mr. Bantulaki learned counsel from Tanzania Legal Corporation pleased justification to the article quoted above.

B At the commencement of the trial, issues were agreed as follows:

1. Whether the defendants printed and published or caused to have printed and published the words complained of in para 5 of the Plaint;

C 2. Whether the words complained of did bear or capable of bearing any meaning defamatory of the plaintiff;

3. Whether the words were true or false;

4. Whether the publication was privileged or was a matter of fair comment;

D 5. Whether the publication referred to caused an injury or loss to his business or to his person;

6. To what relief are the parties entitled.

Mr. Rugarabamu (PW.1) in his sworn statement told the court that he is a businessman dealing with E various businesses such as selling charcoal, selling timber, preparing uniforms; clearing and forwarding goods; and preparing chicken feed for sale.

In his business for selling charcoal, he has a firm known as "Tanzania Charcoal Dealers" and his pattern in F this charcoal business is called Tonny W. Sindano. The firm is a registered one under the Companies Ordinance bearing Registration No. 39434 dated the 11 day of August, 1976 - Exhibit P.1. Before he started this charcoal business, he requested the Ministry of Trade to look for outside markets vide his letter G Exhibit p.2 dated the 15th day of May, 1976. The letter Exhibit p.2 was responded by the Ministry of Trade through its, letter Exhibit p.3 dated the 17th day of May, 1976 which was addressed to the Director General of the Government Purchasing Board Republic of Iraq and copied to the plaintiff. Later the Government of H Iraq by way of telex message Exhibit p.4 corresponded with the Plaintiff. The plaintiff then went to the Ministry of Trade with a request to be given an Export Licence but the Ministry of Trade referred him to the Forest Department for this was the department in a position of giving him an Export Licence in goods obtained from the forest. Forest department referred him to TWICO, for TWICO was the sole company I allowed by the Government to export charcoal abroad and if they failed to export charcoal abroad

they should have given him a letter authorizing him to do so. TWICO referred the plaintiff to Tanzania A Timber Export Company. Tanzania Timber Export Company admitted before the plaintiff that they have failed to export charcoal but they advised the plaintiff to join them in this business venture or else they were not ready to give him an export licence. The terms of their agreement were that Tanzania Timber B Export Company was going to charge the plaintiff 10% of the charcoal he was going to export and that the charcoal is going to be exported through the name of Tanzania Timber Export Company. He was then advised by Tanzania Timber Export Company to write a letter to Iraq informing them about this agreement C and the plaintiff complied with this advice and he wrote a letter a copy of which was tendered in

Court as Exhibit p.5 to the Government of Iraq based in Dar es Salaam. He also sent to Iraq a sample of his charcoal and to prove this he produced Exhibit p.6 which is Air Way Bill NO.094 - 7145 - 9452 of East D African Airways dated the 26th day of June 1976. He did not get a reply from Government of Iraq thus he went again to the office of Tanzania Timber Export Company to inquire about the same where he was told that the Government of Iraq had already entered into a contract to buy charcoal with the Government of E Kenya and he was so informed by the General Manager of Tanzania Timber Export Company who was recently in Nairobi Kenya. He then decided to go and see the officials of Bank of Tanzania with the view of negotiating for foreign currency so that he could go to Iraq to negotiate about the sale of charcoal to Iraq with the officials concerned there. Bank of Tanzania officials advised him to obtain first a letter from F Tanzania Timber Export Company before his request was considered. As he was going to the office of Tanzania Timber Export to obtain the letter as advised by the officials of Bank of Tanzania, he passed through the post office to collect his mails. There he found a letter exhibit p.8 dated the 29th July, 1976 G addressed to the plaintiff by the counsellor of Iraq Embassy here in Dar es Salaam. In the said letter Exhibit p.8 the said Counsellor advised the plaintiff that he should expedite the arrangements of sale of charcoal to his Government Purchasing Board in Iraq. The plaintiff took the letter Exhibit p.8 up to Tanzania Timber H Export Company and showed it to the General Manager of that Company whereby the General Manager gave his a letter Exhibit p.9 which he took to the Bank of Tanzania. The Bank of Tanzania again advised him to go the Ministry of Trade to get a letter of support and he got it and the same was tendered in court I as Exhibit p.11. Later the plaintiff got a copy of a letter Exhibit p.12

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A addressed to the Governor of the Bank of Tanzania not to give any clearance to the plaintiff to go to Iraq to negotiate about the deal of sale of charcoal with the Government Purchasing Board of Iraq for the sole Company allowed to export charcoal from the country is Tanzania Timber Export Company. On receipt B of the copy of the letter exhibit p.12, the plaintiff wrote a letter of protest to the Principal Secretary of the Ministry of Commerce and Industries but unfortunately he failed to produce a copy of that letter and copied that letter to the Governor of the Bank of Tanzania.

C The General Manager of Tanzania Timber Export Company responded to the letter of protest of the plaintiff by writing a letter Exhibit p.13 to the Principal Secretary of the Ministry of Commerce and Industries and copied the same to the Governor of the Bank of Tanzania, the Principal Secretary to the Ministry of Natural Resources and the plaintiff. But before that the Bank of Tanzania refused to give D clearance to the plaintiff to travel to Iraq to negotiate about this deal resulting his letter of protest as stated above. Hereafter the Bank of Tanzania also responded to the plaintiff's letter of protest for on 27th August, 1976 the Director General of the Bank of Tanzania wrote a letter reference No. 14106 dated the 27th E August, 1976 and tendered as Exhibit p.14 to the Principal Secretary, Ministry of Trade advising him to convene a meeting so that the business deal of selling charcoal to Iraq should take effect. As a result of this,

a meeting on 13th August, 1976 was held and the plaintiff was summoned to attend this meeting and F indeed he attended it. Other members who attended this meeting were:

1. Mr. J.N. Mushi - The General Manager of Tanzania Timber Export Company;
2. Mr. A.I. Mongi - one of the Managers from Timber Export Company;
3. Mr, E.M. Mzava from the Ministry of Forest and Natural Resources;
4. Mr. B.D.S. Scoorer - an expert of Tanzania Timber Export Company;
5. Mr, E.S. Mbaga who represented the Principal Secretary to the Ministry of Trade.

In the said meeting, it was resolved that one member from Tanzania Timber Export Company and a I representative from the plaintiff's firm should go to Baghdad in Iraq to negotiate about this charcoal business deal. It was also agreed in this meeting that the

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plaintiff's firm should hand over charcoal to Tanzania Timber Export Company to sell it to Iraq on the A plaintiff's behalf and in return, Tanzania Timber Export Company should charge 10% of the money accrued from the sale. The minutes of the said meeting were tendered in court as exhibit p.15.

To his surprise, on the 13/8/76 when the plaintiff was going to attend the above stated meeting a friend of B his one Mr. Joel Ndyamu (PW.2) gave him a copy of the offending Daily News which he tendered as exhibit p.16 which is owned by the second defendant and published by the first defendant an employee of the second defendant and printed by the third defendant. C

The plaintiff claims that the story appearing in the said newspaper article was not true for he never requested for a licence from the Bank of Tanzania to sell charcoal; therefore the heading of the article was not true, and that by the 13th day of August, 1976 when this offending article came out, his firm had D already been registered and it was registered on the 11th day of August, 1976 and exhibited in his certificate of registration exhibit p.1. He asserted as a lie that by 13/8/76 his firm was not registered as put in the article exhibit p.16. The plaintiff further claims that the defendants showed the plaintiffs' residential E and business addresses in the article exhibit p.16 so that police officers should arrest them for they were considered by the defendants to be criminal offenders.

The plaintiff further asserted that it is not true that the Ministry of Trade did not know about their charcoal business as put in the article exhibit p.16 by the defendants for from May, 1976 his firm had been F corresponding with the Ministry of Trade and held meetings with the officials of that Ministry as stated above. The plaintiff therefore claims to have been defamed.

As a result of this article exhibit p.16, officials from Anti-Corruption squad on the 23/8/76 went to the office G of the plaintiff along Moscow/Libya Street as advertised in the article exhibit p.16 and arrested the plaintiff and his partner in business. These anti-corruption officials identified themselves as being police officers and that they wanted to interrogate them in connection with the article appearing in the Daily News of 13/8/76 exhibit p.16. The plaintiff was handled by a police officer who identified himself as H Corneus Kafipa and he took him up to his office near Army Headquarters. In his room, Kafipa took out a copy of the Daily News of the 13/8/76 and enquired from the plaintiff to account as to how his firm would get money to

bank up its charcoal business and as to whether his firm has other dubious dealings with the I money
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A requested from the Bank of Tanzania. He then gave the plaintiff a sheet of paper to write down his statement. However, the plaintiff refused to write down any statement, whereby Mr. Kafipa threatened to torture him; thereupon, the plaintiff admitted to write down his statement. The plaintiff's partner was B interrogated by another police officer in a separate room. Both of them were released on that very day at 6.30 p.m. after being warned that they should not leave Dar es Salaam City for any time they could be called upon.
Later sometime in September 1976 the plaintiff received a letter Ref. No. 47543 dated 11th September 1976 C from the Government purchasing Board of Iraq exhibit p.17 which states in part and I quote: "We would like to inform that we had to put your offer of 17th of August in abeyance due to high price". The plaintiff claims that he suspected the Iraq Embassy in Dar es Salaam to have sent a copy of the Daily News of D 13/8/76 exhibit p.16 to its Government in Iraq resulting his Charcoal business deal with Iraq Government to be revoked as shown in the letter exhibit p.17. The plaintiff never went to see Tanzania Timber Export Company again for he is already thought by the company as a crook and Tanzania Timber Export Company E never sold charcoal to Iraq as agreed upon for the Company depended upon the plaintiff's firm to get the said Charcoal.
The plaintiff further claims that in the first order Iraq Government wanted to buy 3,000 tons of charcoal from his firm that is to say about 60,000 bags of charcoal each weighing 50 kg. at a price of Shs. 55/02 per F bag could have been sold to Iraq Government had the agreement not been revoked by Iraq Government due to this article appearing in the Daily News exhibit p.16 of 13/8/76. He claims that he rang a person working with Iraq Embassy in Dar es Salaam and he got reminded by that person to read his home papers. The plaintiff further claims that if this business took off, his company could have earned a profit of Shs. G 900,000/= net and this profit was lost due to the article written by the defendants which is defamatory.
Later the plaintiff approached the second defendant to correct errors appearing in the article of 13/8/76 Daily News exhibit p.16 and to offer an apology and the second defendant promised to do so on 16/8/76 H but he never kept his promise. On 21st August, 1976 through the services of their advocate one Mr. Raithatha, the plaintiffs wrote the Daily News second defendant a letter exhibit p.18 asking him to offer an apology and to pay the plaintiff a reasonable sum by way of damages. On 23rd August, 1976 the second I defendant wrote a letter Ref. No. ED/GEN/55 to the plaintiffs through their advocate Exhibit p.19 and part of this letter reads and I quote:
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...while we are making our own investigations on the matter we would like to have from you a sample letter which A could be the basis for discussion on a possible apology.
On receipt of this letter Exhibit p.19, the plaintiff through the services of his other advocate one Mr. Rahim on 22nd December, 1977 wrote the second defendant another letter Exhibit p.20

demanding an apology, B while reminding him of his previous letter Exhibit p.18. On receipt of this letter Exhibit p.20, the second defendant wrote a letter Exhibit p.21 bearing Reference No. BS/AM/119/12/77 dated the 27th December, 1977 to the Chief Corporation Counsel seeking for legal advice on the matter. The plaintiff claims that up to C the time he came to court the defendants have never apologized nor have they given him any reasonable compensation for their defamatory statement appearing in the article
of the Daily News of 13th August, 1976 Exhibit p.16. D
The plaintiff further contended that prior to that article Exhibit p.16 the second defendant also published some other articles which were defamatory about charcoal business and he tendered such articles as Exhibits p.22 and p.24.
In conclusion, the plaintiff testified that he is a businessman dealing with other businesses apart from E dealing with the sale of charcoal: he is dealing with the sale of wood; tailoring of uniforms; clearing and forwarding goods; manufacturing chicken feed and animal and he used to get an annual net profit of:

1. Tailoring Shs. 200,000/ up to 300,000/- F
2. Timber Shs. 300,000/- to Shs. 400,000/-
3. Clearing and Forwarding of goods Shs. 600,000/-

He claims to have had a lot of customers prior to the publication of the offensive article Exhibit p.16 but G thereafter, he no longer gets such a great number of customers and when he appears in his favourite bar known as "White Horse Bar'' to drink along Libya Street here in Dar es Salaam his friends and customers ridicule and laugh at him calling him all sorts of names and he has stopped selling charcoal because some H of his customers consider him to be a criminal offender. He asks now this court to award him Shs. 1 million as damages for this defamation plus costs of this suit.
Mr. Joel Ndyamkama (PW.2) testified that he is a friend of the plaintiff and that the is a sales Manager of Colt Motors. Sometime in August, 1976 he bought a copy of the Daily News Exhibit p.16 I
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A and to his surprise he saw an offensive article defaming the plaintiff and he took that copy of the Daily News Exhibit p.16 to the plaintiff and from then on he considered the plaintiff to be a crook who ran a business without registering it, and he looked down upon him. By then the plaintiff had already applied to B the Colt Motors to buy two cars for the purpose of running his charcoal business but when the managing Director of Colt Motors saw the article appearing on Exhibit p.16, he cancelled the application because he considered the plaintiff to be a crook.
C On the other hand, the defendants admitted to have published the article Exhibit p.16 but they pleaded justification and they called two witnesses in their support and these were Mr. Ernest Ambali (DW.1) and Richard Banjamini Mghuhai (DW.2).
During the hearing of this case the court sat with three assessors as provided under section 57(1) of the D Newspaper Act, 1976 but during final submissions it was reported that one of the assessors was dead and this situation left the court with only two assessors.

I directed the two gentlemen assessors that in a libel action, the plaintiff has to prove three things. Firstly E he has to prove whether those words complained of, were defamatory. The test of what
is defamatory is whether the words complained of would tend
to lower the reputation of the plaintiff in the opinion of right-thinking persons.
On the first issue as to whether the defendants printed and published those words complained of in F paragraph 5 of the plaint; well, the defendants do not deny that and their defence counsel through his submissions readily admitted to have done so. Further still, the plaintiff managed to produce the article in issue Exhibit p.16.

G The second and third issues can be answered together. As rightly contended by Mr. Mbuya, learned counsel for the plaintiff, which contention I wholly agree with, defamation is a false and malicious statement about a man to his discredit. Whether or not a statement is defamatory, the court has to look at the contents of the statement to see as to whether it is true or false and malicious or whether it discredits H the one about whom it relates. Having this in mind, two facts are not true on the Daily News issue Ex. p.16. The heading of the article says:-

> ...Bank rejects Charcoal export application.

This is not all that true for the evidence as stated above clearly shows that the plaintiff requested for travel I clearance to go to Iraq where the prospective customer was and he never applied to an Export
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Licence as the heading of that article Exhibit p.16 wants the public to understand. Surely any right thinking A person on reading the heading of that article on Exhibit p.16 would come to the conclusion that the business deal between the plaintiff and Iraq Government for selling the latter charcoal was finished for without having an Export Licence, the plaintiff could not be in a position to selling charcoal to Iraq B Government; and naturally the officials in Iraq Embassy who are based here in Dar es Salaam and who took part in this deal by negotiating on behalf of their Government were embarrassed.
The next item which I consider to be false is contained in paragraph one of the article in exhibit p.16 and it C reads:

> .... The Bank of Tanzania has rejected application of two officials of an unregistered firm... D

This I think was bad news for Iraq Government together with the officials of Iraq Embassy in Dar es Salaam who naturally believed through this article Exhibit p.16 that they were negotiating with, an unregistered firm and it was as well bad news to right thinking people at large for the public thought that E the plaintiff was a crook who wanted to have business with a foreign Government without having a registered firm. The defendants agreed that they printed and pleaded justification to it. To support their assertion, they brought the Registrar of Companies Mr. Richard Benjamini Mugulue (DW.2) who told the court that the plaintiff's company was registered on 16th August, 1976 three days after the article Exhibit F p.16 complained of was printed and published. This is not at all true for the plaintiff's certificate of

registration Exhibit p.1 clearly shows that the plaintiff's company was registered on 11th August, 1976 before the publication of Exhibit p.16. G

Another false statement in the article Exhibit p.16 is contained in the last paragraph of it and it reads:

...The Principal Secretary in the Ministry of Trade, Ndugu A.G. Cheyo, Said, 'I have heard of the company but the H Ministry has not yet been informed officially about its existence nor its nature of business'.

I say that this statement is false because right from the start as I explained above in the evidence of the I plaintiff (PQ.1) the plaintiff has approached the Ministry of Trade to enquire about the

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A possibility of exporting charcoal abroad for sale. As a result of the plaintiff's inquiries, the Ministry of Trade has written a letter Exhibit p.3 to Iraq Government reminding it about its trade delegation of 1973 looking for wood charcoal and the Ministry of Trade has asked the Iraq Government to contact the plaintiff B directly and copied that letter to the plaintiff and indeed, the Ministry of Trade had requested the plaintiff's firm to get into contract with TWICO and TANTIMBER which the plaintiff's firm did. After long correspondence between the plaintiff and Iraq Government the plaintiff sent a sample of his charcoal to C Iraq Government as shown in the Air Way Bill Exhibit p.6 and as a result, of this, the Iraq Government Purchasing Board wrote back to the plaintiff wishing to buy an initial of 3,000 tons of charcoal. It is therefore not true that the Ministry of Trade was not officially aware of the existence of the plaintiff's firm.

D The next issue is whether the words used in the article Exhibit p.16 were defamatory of the plaintiff. To this Mr. Mbuya learned counsel for the plaintiff referred me to the case of East African Standard v Gitan (1970) E.A. 678 where it was held by Spry Ag. J. as he then was that the test of what is defamatory is E whether the words complained of would tend to lower the reputation of the plaintiff in the opinion of right-thinking persons; and one should look at the general impression they are likely to created in the minds of reasonable persons. In the instant case the article Exhibit p.16 has carried an innuendo that there F was an illegal firm in the sense that it was not registered and that this unregistered firm was carrying on business without complying with the requirements of the law causing the Bank of Tanzania to react by refusing to grant it export licence for exporting charcoal abroad. There is evidence on record by the plaintiff (PW.1) and his witness (PW.2) that after publication of this article exhibit p.16 which evidence was G not disputed that the plaintiff (PW.1) and his partner were arrested and interrogated in connection with this charcoal business as exhibited in the article Exhibit p.16. More and above, the plaintiff's application to buy two motor vehicles from Colt Motors for his charcoal business as stated by his friend (PW.2) was also H refused as a result of the publication of this article Exhibit p.16. Later PW.2 went to the plaintiff and enquired from him as to whether what he had read in the article Exhibit p.16 was true and when the plaintiff went to drink in one of the bars he normally used to frequent the "White Horse Bar", he was looked down I upon as a crook by his customers and friends. I agree with Mr. Mbuya's contention that by then the Daily News was the only

substantial media in the country with a wide circulation and among the people who read it were the people A of Iraq Embassy in Dar es Salaam when the plaintiff with knowledge of the Ministry of Trade was contacting with Iraq Government trying to sell charcoal in Iraq.

In conclusion therefore, I agree with the unanimous opinion of the two gentlemen assessors that the article B exhibit p.16 was recklessly prepared on incorrect information and the publication of this article appearing in exhibit p.16 has injured the reputation of the plaintiff and it has exposed him to hatred, contempt and it has damaged him in his business profession. The defendants acted in this manner without lawful justification or excuse and the information was false. C

I now come to consider the fifth and sixth issues and these two issues can be consolidated together for they are inter-related.

With that I directed the two gentlemen assessors to consider the following: D

(a) Gravity of the defamation,

(b) Whether the libellous imputation was conveyed to the general mass of readers of the Daily E News,

(c) Regard should be taken of the defendants' refusal to publish an apology.

The two gentlemen assessors were of the unanimous opinion that the plaintiff should be awarded Shs. 470,400/- as general damages. F

It is true that the innuendo appearing on Exhibit p.16 was disparaging to the plaintiff's character and the article imputed the commission of a crime by the plaintiff and that is why he was arrested, and detained for interrogation by the anti-corruption officials for a number of hours. As a result the plaintiff's business has G dwindled as the general public has shunned away from him. For they look down upon him as a crook after reading that article. Even though, I look at this claim with a bit of scepticism for it is likely that the plaintiff might have exaggerated this claim out of feelings of indignation. Indeed the plaintiff's business H contact with Iraq Government had come to an abrupt end due to the publication of this libelous article Exhibit p.16 but also due to high price as complained by the Iraq Government in their letter Exhibit p.17. I also take into account that the Daily News had a wide circulation for it is read not only in the whole I country but also in neighbouring countries. More and above, the second defendant's conduct after

A publication of the libel aggravated the matter. The second defendant did not respond to letter sent to him by the plaintiff's advocates nor did he offer an apology. I agree that in these circumstances the plaintiff is entitled to substantial damages bearing in mind that the plaintiff's means of livelihood has seriously been threatened.

B I am not however, in agreement with the opinion of the gentlemen assessors that the amount of damages be in the region of Shs. 470,400/-. The plaintiff tried to bring in some figures in order to convince the court as to how much he used to earn before the publication of this offending

article but he never told C the court as to how much he is now earning in his various businesses after the publication of this article nor did he produce his books of accounts to prove what actually he earned in his various businesses before the publication of this offensive article Exhibit. p.16 and this being the position, the plaintiff might D have exaggerated out of feelings of indignation and the figures of profits of his businesses might not be all that accurate. It should also be borne in mind that the business contract with the Iraq Government was not at all concluded and the plaintiff had all the opportunity to mitigate the damage by selling his charcoal locally.

E It is therefore my view that the interests of justice will be served if the plaintiff is awarded Shs. 200,000/= as general damages plus costs and interests. It is so ordered.

F Order accordingly.

1983
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Judges of the High Court of Zanzibar in 1983

1.	The Hon. Mr. Justice A. Ramadhani	Chief Justice

Cases Reported
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A

[zRPz]JOHN M. BYOMBALIRWA v AGENCY MARITIME INTERNATIONALE (TANZANIA) LTD 1983 TLR 1 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Nyalali CJ, Makame JJA and Kisanga JJA

1 December 1983
CIVIL APPEAL 15 OF 1983 B
Flynote
Civil Practice and Procedure - Plaint - Failure to disclose a cause of action - Whether necessary for plaintiff to aver compliance with s. 6 of the Sale of Goods Ordinance Cap. 214(T). C
Civil Practice and Procedure - Plaint - Particulars in - Special defence open to defendant - Whether plaintiff required to anticipate it - S.6 Sale of Goods Ordinance and O. VII r. 1(e) Civil Procedure Code.
Civil Practice and Procedure - Reply to written statement of defence - Whether court to take D into account when considering whether plaint discloses cause of action - O. VIr. 7 Civil Procedure Code.
Civil Practice and Procedure - Plaint - Failure to disclose a cause of action - Dismissal of suit - Proper action to be taken - O.VII r. 11 (a) Civil Procedure Code. E
-Headnote
The appellant appealed against the Order of the High Court dismissing his claim for failure of the plaint to disclose a cause of action. The plaint had alleged that there was a contract whereby the appellant was to supply to the respondent goods valued at Shs. F 82,237/50; but that the respondent had refused or neglected to take the said goods. The appellant, accordingly, wanted to recover the said sum being the agreed price for the goods or damages for breach of contract.
In the written statement of defence, the respondent raised a preliminary objection that G the claim offended against s. 6 of the Sale of Goods Ordinance and therefore it should be dismissed for the plaint's failure to disclose a cause of action.
Held: (i) The plaintiff is under no obligation to aver in the plaint compliance with any H requirement under s. 6 of the Sale of Goods Ordinance which only provides a special defence which a defendant may rely on if he so wishes;

(ii) the plaintiff is under no obligation to anticipate any special defence which might be available to the defendant; I
1983 TLR p2
A (iii) for purposes of deciding whether or not the plaint discloses a cause of action the plaint and not the reply to the written statement of defence should be looked at, the reply merely serving to show that the plaintiff joins issues with the defendant on the special defence raised in the written statement of defence;
B (iv) under O. VII r.11(a) of the Civil Procedure Code, where the plaint discloses no cause of action the court is to reject it and not dismiss it.

Case Information

Appeal allowed. C

Cases referred to:

1. Narsinh Valji v Dr. D.K. Shukla HC. DSM. Civ App. No.9 of 1955 (unreported).
2. Nazerali Merali t/a Merali & Co. v. S.K. Rajwani t/a United Commercial D Co. HC.DSM. Civ App. No. 24 of 1961

M.J. Raithatha for the appellant,

F.H. Uzanda for the respondent.

[zJDz]Judgment

E Kisanga, J.A., delivered the following considered judgment of the court: This is an appeal from the ruling of the High Court dismissing the appellant's claim on a preliminary objection that the plaint disclosed no cause of action because there was no compliance with the requirements of section 6 of the Sale of Goods Ordinance (Cap. 214). The F plaint had alleged that there was a contract whereby the appellant was to supply to the respondent goods valued at shillings 82,237.50, but that the respondent has refused or neglected to take the said goods. The appellant therefore sued to recover the said sum of shillings 82,237.50 being the agreed price of the said goods or damages for breach of contract. G

In written statement of defence the respondent, among other things, raised the defence that the claim offended against the provisions of section 6 of the Sale of Goods Ordinance and therefore prayed the court to dismiss it for disclosing no cause of action. In reply to the written statement of defence, the appellant sought to show that there had H been compliance with some requirements of section 6 of the Ordinance. However, at the commencement of hearing the suit, the respondent's counsel took a preliminary objection that the plaint disclosed no cause of action for non-compliance with section 6 I of the Ordinance. The objection was upheld and the suit was accordingly dismissed as prayed. In this appeal the appellant

was represented by Mr. M.J. Raithatha while the respondent was represented by Mr. A F.H. Uzanda. They were the same advocates representing the parties in the lower court.

The question before us and which was also before the court below is a very narrow one. It is whether in a case involving section 6 of the Sale of Goods Ordinance, it is necessary for the plaintiff to aver in the plaint that there has been compliance with the provisions of B that section. As indicated earlier, the learned trial judge held that it was. The relevant parts of section 6 of the said Ordinance provide:

6.(1) A contract for the sale of any goods of the value of two hundred shillings or upwards shall C not be enforceable by action unless the buyer shall accept part of the goods so sold, and actually receive the same, or give something in earnest to bind the contract or in part payment, or unless some note or memorandum in writing of the contract be made and signed by the party to be charged or by his agent in that behalf. D

(3) There is an acceptance of goods within the meaning of this section when the buyer does any act in relation to the goods which recognizes a pre-existing contract of sale whether there be an acceptance in performance of the contract or not. E

Both counsel are agreed that the provisions of this section are only procedural, and we think that is right. But Mr. Uzanda went further and submitted that those provisions are mandatory. He strenuously contended that in a case involving this section, the plaintiff F must plead in the plaint that at least one of the requirements set out in that section has been satisfied. Mr. Raithatha vigorously countered such proposition. He submitted in effect that there was no obligation for the plaintiff to plead in the plaint compliance with the requirements of the section, and that the section only creates a statutory defence G which a defendant may rely on if he so wishes. In this connection he referred us to some decided cases and text books. Of particular interest were two unreported decisions of the High Court in the cases of Nazerali Merali trading as Merali & Co. v S.K. Rajwani trading as United Commercial Co. (DSM. Civ App. No. 24 of 1961) H and Narsinh Valji v Dr. D.K. Shukla (DSM. Civ App. No. 9 of 1955). Both cases were of much assistance to us.

In order to ascertain the validity or otherwise of Mr. Uzanda's argument, it seems desirable first of all to refer to the provisions of Order 7 of the civil Procedure Code I which lay down the particulars that are to be contained in a plaint. Rule 1 (e) of the said Order says

that the plaint shall contain, inter alia, the facts constituting the cause of action. The A expression "cause of action" is not defined under the Code, but it may be taken to mean essentially facts which it is necessary for the plaintiff to prove before he can succeed in the suit. Mr. Uzanda's argument necessarily envisages rule 1 (e) as embracing the B requirements under section 6 of the Sale of Goods Ordinance. In other words, according to Mr. Uzanda the requirements under section 6 are facts which constitute cause of action and which therefore must be set out in the plaint. It is in that way that Mr. Uzanda is able to maintain systematically and logically that the plaint discloses no cause C of action because none of the requirements under section 6 constituting essential facts has been averred or pleaded therein.

We have given much thought to Mr. Uzanda's argument, but we have not been persuaded by it. We do not think that the requirements under section 6 amount to facts D constituting cause of action. We think, as argued by Mr. Raithatha, that section 6 only provides a special defence which a defendant may rely on if he so wishes. It should be pointed out however that where a defendant wishes to avail himself of that defence, he has to raise it on the pleadings. The reason for this is clear. It is to avoid taking the other E party by surprise at the trial. It is designed to give the opposite party sufficient notice of the case which he is to meet at the trial. Once we hold that the requirements under section 6 only create a special defence open to a defendant, it logically follows that a plaintiff is under no obligation to aver in the plaint compliance with any such requirement. F Nor does he have to anticipate it. His obligation in relation to it arises only if and when the defendant has raised it. So that should the defendant choose not to raise it at all, for instance, the trial is to proceed; the plaintiff has no duty to refer to it and even the court is G

not bound to take judicial notice of it. It is a special defence designed for the benefit of a defendant, but if the defendant does not wish to avail himself of it, the matter is to rest at that.

In the context of the facts of the present case the position amounts to this. The appellant H has alleged a contract between himself and the respondent to buy certain goods. The respondent essentially admits the contract but says that he has a defence, namely, that the said contract does not meet the requirements of section 6 of the Ordinance. But this does not mean that the appellant has no cause of action which exists quite independently of the defence. Here both parties have admitted a valid contract between them. Section I 6 merely says that a contract shall not be enforceable unless it be proved

in a certain way. Thus once the respondent raised the statutory defence as he did, it was A for the court to ascertain whether or not the appellant who sought to enforce the contract was prepared to prove it in the manner as required under section 6. If the appellant succeeded to do so he would be entitled to judgment, and only if he failed to do so would judgment be against him. B

It is therefore apparent that the learned judge acted prematurely. He concluded the matter when he ought to have gone on. He was not satisfied that the appellant was not prepared, or had failed, to prove the contract in the manner as required under section 6. Indeed the appellant's reply to the Written Statement of Defence indicates that the C appellant was prepared to prove compliance with some requirements of that section. We think that in this type of cases once the special defence is raised the trial judge should treat it as an issue to be resolved after receiving evidence on it.

A further word need be said about the appellant's reply to the written statement of D defence which, as already stated, indicates that the appellant was prepared to counter the respondent's defence by alleging acceptance of the goods and the existence of a written memorandum of the contract. Mr. Uzanda contended that the appellant, by alleging a written memorandum, was now departing from the plaint which had alleged an E oral contract. He submitted further that this contravened the provisions of Order 6 Rule 7 of the Civil Procedure Code which provide that:

> No pleading shall, except by way of amendment, raise any new ground of claim or contain any F allegation of fact inconsistent with the previous pleadings of the party pleading the same.

He therefore concluded that in considering whether or not the plaint discloses a cause of G action only the plaint should be looked at; the reply must be ignored. We agree that for purposes of deciding whether or not the plaint discloses a cause of action the plaint and not the reply should be looked at. But for reasons we have given earlier on, we are H satisfied that the plaint as filed adequately discloses a cause of action. The reply merely serves to show that the appellant joins issues with the respondent on the special defence raised in the written statement of defence. In that sense it seems that the reply can hardly be said to be a departure from the allegation made in the plaint. I

1983 TLR p6
Before we conclude this matter, it is pertinent to observe that even if Mr. Uzanda's A allegation were well founded that the plaint disclosed no cause of action, the relief he asked for was wrong. He
asked for an order dismissing the suit and the court granted him accordingly. This contravened the provisions of Order 7 rule 11(a) of the Civil Procedure Code which say B that where the plaint discloses no cause of action the plaint is to be rejected. Needless to say, the consequences of rejecting a plaint differ from those flowing from dismissing the suit.
In the result the appeal succeeds. We set aside the decision of the High Court dismissing C the suit. The case is remitted back to the High Court with a direction to that court to continue to hear the case in accordance with the law. The appellant is to have his costs.
D Appeal allowed.
1983 TLR p6
E
[zRPz]ATHUMANI KHALFANI v P.M. JONATHAN 1983 TLR 6 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mustafa JJA, Mwakasendo JJA and Makame JJA

CIVIL APPEAL 12 of 1983
Flynote
F Tort - Defamation - Defamatory statement-Meaning of Tort - Defamation - Malice required where communication privileged.
Tort - Defamation - Malice does not exist where defendant honestly and reasonably believes in the truth of the communication.
Tort - Defamation - "Privileged occasion" - Communication to the Chief Justice - Whether G privileged.
-Headnote
The appellant appealed against the decision of the High Court which ordered him to pay damages to the respondent for libel. The libel consisted of a communication to the Chief Justice made by appellant alleging that the respondent was corrupt. The detailed facts of H the case appear in the judgment.
Held: (i) A person making a communication on a privileged occasion is not restricted to the use of such language merely as is reasonably necessary to protect the interest or discharge the duty which is the foundation of his privilege; but on the contrary he will be I protected even
1983 TLR p7
MUSTAFA JA
though his language should be violent or excessively strong; if having regard to all the A circumstances of the case he might have honestly and on reasonable grounds believed that what

he wrote or said was true and necessary for the purpose of his vindication, though in fact it was not so;

(ii) malice is required where the communication is privileged;

(iii) malice does not exist where a defendant honestly and reasonably believes in B the truth of the communication.

Case Information

Appeal allowed.

Case referred to: C

1. Adam v Ward, [1917]AC 309

Editorial Note: The High Court decision is reported in [1980] TLR 175.

[zJDz]Judgment

Mustafa J.A.: The respondent successfully sued the appellant Athumani for libel in the D High Court (Lugakingira, J.) and was awarded damages amounting to Shs. 33,000/= inclusive of a sum of shs 20,000/= which represented exemplary damages. From that E decision the appellant is appealing.

The facts very briefly are as follows. The respondent was a judge of the High Court of Tanzania during 1978 and in that capacity in July, 1978 he tried a Civil Case at Dodoma in which the parties were the appellant Athumani and one Mahusein Salum. The F respondent reserved judgment. Something happened in October, 1978, before judgment was read. As a result the appellant Athumani made a complaint to the Permanent Commission of Enquiry and was directed to report to the Chief Justice. Athumani did so, and was told to put the complaint in writing which he did in a letter to the Chief Justice dated 6/11/78. The letter was exhibited in Court as Exhibit P2 and formed the basis of G the libel action. In it Athumani had alleged that the respondent had shown bias in favour of his opponent Salum, that the respondent, while on a visit to the locus in quo had winked at or otherwise made a gesture to Salum, that he had seen Salum with the respondent in the respondent's car and had seen the respondent and Salum together at H two different guest houses. He also referred to information supplied to him by Dodoma Court Chief Clerk, one Mkufya concerning the familiarity between the respondent and Salum and about a transaction involving the payment of money by Salum to the respondent. I

Enquiries were apparently conducted by the Chief Justice on these allegations, but A nothing turned on them in so far as this appeal is concerned.

The respondent, after retiring or resigning from the bench, filed the action for defamation which has given rise to this appeal.

The trial judge found that the letter of 6/11/1978 Exhibit P2 was published to the Chief B Justice by Athumani, that it was defamatory of the respondent but that it was published on an occasion of qualified privilege. He found no publication to the Permanent Commission of Enquiry or the Police. However he found that Athumani was C actuated by malice when he published the said letter Exhibit P2, which thus destroyed the privilege. He therefore awarded damages as mentioned earlier against Athumani.

We are satisfied that the trial judge was right in finding that there was publication to the Chief Justice, that the letter was defamatory of the respondent, and that it was published D on a occasion of qualified privilege. Athumani's advocate on appeal before us does not dispute these findings. However the issue on appeal is whether there was malice or evidence of malice which destroyed the privilege. The respondent, though duly served, was absent and unrepresented and we thus do not have the benefit of his arguments. E

The appellant Athumani in evidence stated inter alia:

The most important thing in this case are acts of bribery. When I saw these acts, and signs of them, I decided to complain to the C.J. confidentially. It is easy to see signs of corruption but it F is difficult to prove corruption. But by the grace of God, both the giver and the receiver have confirmed it. What I wrote to the C.J. had only one purpose. It will be recalled that plaintiff said the Arab was brought into his office and he agreed that they talked about bribery. That is the G incident I wrote about in para 6 of my letter to C.J.

Again

....I did not say anything false about him. I had no malice...

Again H

...I asked myself whether it was a simple matter to accuse a judge. The answer was no; it was a grave matter.

Again

...In reporting to the C.J. that Judge Jonathan was corrupt. I wanted justice. Another judge. It is I true I also wanted him arrested and, if possible prosecuted or detained..

1983 TLR p9

MUSTAFA JA

The respondent Jonathan in his evidence stated inter alia: A

...In October, 1978, when I was in my chambers one morning a messenger.....told me someone....wanted to see me on official matters....The person who entered was the plaintiff in the Civil Case I have referred to. The messenger had then left. Mahusein (Plaintiff) then wanted to know the progress of the case. I told him to go home and that he would be called for B judgment. He there and then told me he had received my message from my Clerk. He then asked me whether I had received his message from that Clerk. I was surprised. I told him I had not sent anybody to him nor had I received any message from him. I asked which Clerk C was that? He replied "Mkufya" - who was Chief Clerk of this court. I asked him to call Mkufya so that I could question him in his (plaintiff's) presence. He begged me to drop the matter. He expressed the wish that the matter ends there. I recall he told me he had given Mkufya Shs. D 250/=. I told him to go away and await date of judgment.

When he left, I sent a messenger to call Mkufya...Mkufya denied everything... He then told me that it was Mahusein who had followed him (Mkufya) and asked him to see me on that case. Mkufya said he refused the request. But Mahusein allegedly insisted so in the end Mkufya E gave in. He then received the money from Mahusein. I told him "give me the money then". He replied that he received it and kept in safe custody... I told him to go and bring the money. He agreed and left. F

Shortly after Mkufya left my chambers, I called the D.R. Ndugu Kazimoto. I told him what had transpired. We decided to wait for Mkufya to return. A long time (2 hours) went by. Mkufya never came back to my chambers...Kazimoto then brought Mkufya... He completely denied even that G (receiving and keeping the money)... Kazimoto brought Mahusein in the same day and we all met in my chambers and in Mkufya's presence. Mahusein repeated what he had told me earlier. Mkufya denied everything... I then directed Kazimoto to take appropriate action...Kazimoto transferred Mkufya... H

Kazimoto was not called to give evidence. Mahusein Salum testified and stated that one day Mkufya approached him and told him that the judge (respondent) would expedite I writing the judgment if he gave 2,000/= as a present. He said he did not believe Mkufya

and did not give the money. He went to the respondent to verify the story. He asked if A the respondent had sent Mkufya to him for Shs. 2,000/=. He stated in evidence:

The judge was first shocked. Then he recovered and laughed and decided to summon Mkufya. I requested him to leave the matters there, lest the situation becomes serious...He B said we would be informed when the judgment was ready...

Salum seems to have denied giving any money to Mkufya.

Mkufya in his testimony stated inter alia:

I was transferred to Kondoa because Mahusein Salum went to tell judge Jonathan that I had C taken Shs. 2,500/=.

He denied approaching Salum or receiving any money from him or that he had told the D respondent that he had the money. He stated that he had told the appellant Athumani that Salum was used to calling at the respondent's chambers but denied telling Athumani that he was getting bribes on behalf of the respondent.

It seems clear to us that pending the decision in the civil case between appellant E Athumani and Salum there was some transaction involving the giving or receipt of a bribe on the part of Salum and Mkufya allegedly acting as agent for the respondent. That was clear from the respondent's evidence. The appellant Athumani claimed that Mkufya had passed on that information to him. So Athumani was in possession of information which F must have greatly upset him. As Athumani stated in evidence:

The most important thing in this case are acts of bribery...

Was Athumani justified in believing the information supplied to him by Mkufya, and did G he honestly believe that acts of bribery had taken place? After receipt of Mkufya's information Athumani took steps which culminated in his letter to the Chief Justice, Exh. P2.

Did Athumani make the report to the Chief Justice maliciously? The trial judge found that H he did. In his judgment he said inter alia:

Malice has been variously stated as ill-will, spite, improper motives, indifference to truth etc. In I short when a person publishes of another a statement which is false and defamatory

and does so for ill motives he is said to publish the statement maliciously... The burden of A proving malice rests on the plaintiff...He can discharge the burden in several ways.. Fortunately or other-wise I do not have to go very far in establishing the defendant's motives...I will do no more than to quote his very words: B

"I reported to the Chief Justice that Judge Jonathan was corrupt. I wanted justice. Another judge. It is true, I also wanted him arrested and if possible prosecuted or detained".

These confessions are self explanatory and the defendant never sought to revise them. C These are confessions of malice. The defendant was not just interested in the fate of his case. He also wanted to wreak vengeance on the plaintiff, in short, to ruin him... and find that the defendant was actuated by vaulting malice in communicating to the Chief Justice.... D

The trial judge also referred to the transfer of Mkufya who he thought was Athumani's trusted consultant and concluded that the said transfer trigged off the complaint to the Chief Justice.

The trial judge disbelieved the evidence of Athumani and his witnesses to the effect that E the respondent and Salum had been seen together in guest houses and found that the allegations of bias contained in the plaint were not proved. He seemed to find further support of malice in these unproved allegations.

With respect we do not think that the trial judge was justified in coming to the conclusion F he did. Athumani clearly believed what Mkufya had told him about a transaction involving bribery. He was obviously upset. As he said, "the most important thing in this case is bribery..." What he did was to take up the matter and he did so with circumspection. He eventually complained to the Chief Justice. In so reporting he had G said he wanted justice. He said he had no malice and did not say anything false about the respondent; that is he told the Chief Justice what he honestly believed to be the truth. He was obviously trying to protect his own interest. He also said, "...I also wanted him arrested and if possible prosecuted and detained". If the respondent was in fact guilty of H corruption, he would naturally be arrested and prosecuted or detained. The trial judge used this sentiment expressed by Athumani as a "confession of malice". We do not think so. In Adam V . Ward [1917] AC 309 a House of Lords decision and a leading case on defamation, Lord Atkinson stated at p. 339: I

The authorities, in my view, clearly establish that a person making a communication on a A privileged occasion is not restricted to the use of such language merely as is reasonably necessary to protect the interest or discharge the duty which is the foundation of his privilege; but on the contrary he will be protected, even though his language should be violent or B excessively strong; if having regard to all the circumstances of the case, he might have honestly and on reasonable grounds believed that what he wrote or said was true and necessary for the purpose of his vindication, though in fact it was not so. C

This passage has been cited with approval in Tanzania and other East African courts.

Did Athumani, when making his complaint to the Chief Justice, honestly believe that his complaint was true? Athumani himself said that he had said nothing false about the D respondent and had no malice towards him.

Was Athumani telling the truth? We will examine the objective conditions obtaining at the material time. There was clear evidence, given by the respondent himself, that a transaction involving bribery or attempted bribery had taken place. That is the gravamen E of Athumani's charge. The other incidents were merely in support of that charge.

We think that Athumani had good reason to believe the information Mkufya had given him, which in the event had proved to be substantially true, in so far as an attempt at F bribery was concerned. If he had reported to the Chief Justice in this honest belief, then he had no malice, even if the information furnished was false.

The trial judge found that the respondent never by himself or through Mkufya solicited or G obtained a bribe from Salum. That may well be so; but the evidence given by the respondent himself established that there was a transaction involving a bribe or attempted bribe, with him as the central figure.

We make no comment on the respondent's conduct when he was faced with the H confessions of bribery made by Salum and Mkufya in his chambers except to say that it seems rather odd. We would have expected at least an immediate and instant confrontation of the parties concerned, including the appellant Athumani, when Salum told him in the privacy of his chambers that he had sent him Shs. 2,500/= obviously as a I bribe. If that had been done we venture to think no suspicions against him could have arisen.

1983 TLR p13

In the circumstances we think that Athumani on reasonable grounds honestly believed A that his complaint to the Chief Justice was true and we do not think that there was sufficient evidence of malice to destroy the qualified privilege under which the publication was made.

We have noted the remarks made by the trial judge concerning the issue of the award of B exemplary or punitive damages. We do not propose to deal with this matter as it is unnecessary in view of the conclusion we have reached in this appeal. We will only say that it is generally inadvisable to embark on an examination and detailed analysis of a controversial issue of this nature without the assistance of counsel on both sides. It may C be that the trial judge has come to the right conclusion on this question, but we will reserve any decision on this matter for a more appropriate occasion.

We allow the appeal, set aside the judgment and decree of the High Court and substitute D therefore an order that the claim for damages be dismissed with costs to the appellant Athumani both here and below.

E Appeal allowed.

1983 TLR p13

F

[zRPz]CONSTRUCTION ENGINEERS AND BUILDERS LTD v SUGAR DEVELOPMENT CORPORATION 1983 TLR 13 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Mwakasendo JJA, Makame JJA and Kisanga JJA

28 November 1983
CIVIL APPEAL 23 OF 1983
Flynote
Civil Practice and Procedure-Stay of suit-Whether suit may be stayed on application of G defendant for matter to be dealt with by Arbitrator- S.6 Arbitration Ordinance, Cap. 15.
-Headnote
The appellant, Contractor, entered into a contract with the respondent under which the H appellant was to undertake the construction of "Sukari House" for the respondent. The construction was to be completed by 3rd January, 1983, and the respondent was empowered under the contract in certain events to terminate the contract, take I possession of the works and complete the works by employing
1983 TLR p14
and paying other people to do so. The contract contained an arbitration clause. A
On 7th June, 1982, the respondent issued a notice to the appellant for "failure to proceed regularly and diligently with the works" and that if the default continued for another 14 days from the date of receipt of the notice the respondent would be at the B option of terminating the appellant's employment as a contractor without further notice.
The employment was terminated by a letter from the respondent to the appellant dated 4th February, 1983. The appellant then filed a suit in the High Court raising among other C issues, the following issues: (i) That the respondent could not terminate the contract in 1983, having stated in his first notice that he would have terminated it after the expiry of the 14 days if there was a continued breach. Not doing so raised a presumption that there was no breach and hence a fresh notice was necessary. (ii) That the respondent, D by waiting for so long after issuing the 1982 notice, had waived his right to terminate the contract and had indeed issued further instructions to the appellant. (iii) That the appellant had complied with the notice of 1982. (iv) That the termination was E unreasonable and vexatious and (v) the termination of the contract was illegal and invalid.
On being served with a copy of the plaint, the respondent immediately made an appearance before the High Court and applied for a stay of the actions in terms of s. 6 of the Arbitration Ordinance. This application was granted. On appeal against the order F of stay, the appellant argued that the learned High Court Judge wrongly exercised his discretion to order a stay because the differences between the parties were not within the scope of the arbitration clause and that the dispute raised questions of law only which were not within the competence of an arbitrator. G
Held: (i)Where proceedings are instituted by one of the parties to a contract containing an arbitration clause and the other party, acting pursuant to the arbitration clause, applies for a stay of proceedings, the court has to decide the precise nature of the dispute and H whether the dispute falls within the terms of the arbitration clause;

(ii) where it is clear that the parties to a contract have agreed to submit all their disputes or differences arising "under" the contract to an arbitrator, the dispute must go to arbitration unless there is good reason to justify the court to override the agreement of I the parties.

1983 TLR p15

Case Information

Appeal dismissed A

Cases referred to:

1. Hounslow, L.B.C.v Twickenham Developments [1970] 3 W.L.R. 538.
2. Re Carlisle; Clegg v Clegg [1910] 1 Ch.495
3. Crowe v Crossley [1912]108 L.T.11 B
4. Barnes v Young [1899] 1 Ch.414
5. Green v Howell [1910]1 Ch.495
6. Willesford v Watson 28 L.T. Rep. 428
7. Metropolitan Tunnel etc. Ltd v London Electric Railway [1926] Ch.371
8. Heyman v Darwins Ltd. [1942] A.C. 356 C

M.A. Lakha for the appellant,

Banturaki for the respondent.

[zJDz]Judgment

Mwakasendo, J.A. delivered the considered judgment of the court: The question that D has to be decided by the Court in this appeal is whether the suit filed in the High Court by the appellants against the respondents should, on the application of the latter, be stayed pursuant to the provisions of section 6 of the Arbitration Ordinance, Cap. 15 of E the Laws of Tanganyika, so that the matter in dispute may be dealt with by an arbitrator appointed in accordance with clause 36(1) of the contract entered into by the parties.

To answer the question posed we start with an examination of the dispute that has arisen between the parties. The appellant, as one can see from the plaint is a Construction or F Building Engineers (hereinafter referred to as "the Contractor"), and the respondent is a parastatal organization (hereinafter referred to as "the Employer"). By an Agreement made between them on 19th September, 1980, the employer employed the contractor to carry out the work of erecting "Sukari House", the work to be completed on 3rd G January, 1983. Clause 25 of the Contract empowered the Employer in certain events to terminate the contract, take possession of the works and complete the works by employing and paying other people to do so. Clause 26 stipulated the circumstances in which the contractor might terminate the contract. The contract also contained an H arbitration clause-clause 36. I

1983 TLR p16

MWAKASENDO JA

According to the Statement of claim in the plaint, the Employer on 7 June, 1982, issued A a notice addressed to the Contractor in terms of Clause 25(1)(b) of the conditions of the contract. The notice, entitled "Notice of Determination by Employer" reads:

In accordance with Clause 25(1)(b) of the Agreement and Schedule of Conditions of the B Building Contract between the Sugar Development Corporation and yourselves, and the

Agreement dated 19th September, 1980, we hereby give notice to you that you are in default by reason of: "Your failure to proceed regularly and diligently with the works". C

If this default continues for the ensuing fourteen days from the date of receipt of this notice, the Employer may determine your employment as contractor without serving further notice. D

It is then alleged in the plaint that on 4th February, 1983 the Employer wrote a letter to the Contractor notifying him that he was terminating the contract and taking possession of the works pursuant to the provisions of clause 25 of the Contract. Following this notice the Contractor filed a suit in the High Court raising a number of issues of dispute. E These issues are set out in paragraphs 6 to 10 of the plaint. They read as follows:

6. By notice dated 4th February, 1983, the defendant has purported to terminate the contract F acting under the above conditions and the notice of the 7th June, 1982 annexed here to and marked "B" is copy of the said notice of the fourth February, 1983 of the plaintiff, states that the defendant is not entitled to terminate the contract aforesaid. In February, 1983 acting on the notice of 7th June, 1982 as under condition 25 (1) (b) the defendant was obliged to terminate G the contract within 14 days of the date of the said notice and that if the defendant found any breach by the plaintiff that would entitle the defendant to a termination in February, 1983, a clear fresh notice was necessary and a precondition under the said condition before H termination.

7. Moreover the plaintiff states that the defendant has waived the said notice of the 8th June, 1982 in that after the issues of the said notice and the expiry of the days, the defendant has I acknowledged and accepted the plaintiff as continuing in

contract for the said work with the defendant and has issued further instructions to the plaintiff, A has obtained further work from the plaintiff and made various payments to the defendant.

8. Further and in the alternative, the plaintiff states that the plaintiff has complied with the requisitions in the notice of the minutes of the site meetings. B

9. The plaintiff will also contend that the purported termination is unreasonable and vexatious as the defendant unreasonable (sic.) fails to take into account the prevailing conditions in Tanzania. Defendant is actuated by a desire to replace the plaintiff with a contractor of (sic.) the C choice.

10. In the premises the plaintiff contends that the purported termination of the contract by the defendant is illegal and inoperative. D

On being served with a copy of the plaint, the Employer immediately made an appearance before the High Court and applied for the action to be stayed in terms of E section 6 of the Arbitration Ordinance, Cap. 15. Section 6 reads:

6. Where any party to a submission to which this Part applies, or any person claiming under him, commences any legal proceedings against any other party to such legal proceedings F may, at any time after appearance, and before filing a written statement, or taking any other

steps in the proceedings, apply to the court to stay the proceedings;and the Court, if satisfied that there is no sufficient reason why the matter should not be referred in accordance with the submission, and that the applicant was, at the time when the proceedings were commenced, G and still remains, ready and willing to do all things necessary to the proper conduct of the arbitration, may make an order staying the proceedings.

Where proceedings are instituted by one of the parties to a contract containing an H arbitration clause, as was the case here, and the other party, acting pursuant to the arbitration clause, applies to the High Court for a stay of proceedings, the first thing to be decided is the precise nature of the dispute which has arisen and the next question is I whether the dispute is one within the terms of the

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arbitration clause. In the instant case the matters in dispute are set out in paragraphs 6 to A 10 of the plaint-supra. But to answer the question whether the dispute in the case falls within the arbitration clause, one has to construe the arbitration clause. The arbitration clause - clause 36 contained in the contract between the parties, is a standard form of B clause which is to be found in most building contracts based on the Royal Institute of British Architects (R.I.B.A.) form of contract. It is framed in the widest terms possible and embraces "any dispute or difference between the Employer and the Contractor.... as C to the construction of the contract or as to any matter or thing of whatever nature arising thereunder or in connection therewith... or the rights under clause 25.... then such dispute or difference shall be and is hereby referred to the arbitration and final decision of a person to be agreed between the parties...."

Counsel for the parties agree that the arbitration clause in this case covers all the issues in D dispute because on a proper construction of the clause the dispute or difference relates to matters arising "under" or "in connection with" the contract and/or the rights and liabilities of the parties under clause 25. That, we think, is a perfectly correct construction of the arbitration clause - clause 36 of the Conditions. What, however, the E advocates of the parties are not agreed upon is the question whether in the circumstances of this case the learned High Court Judge was right in ordering a stay of proceedings in the exercise of this discretion under section 6 of the Arbitration Ordinance. Mr. Lakha, learned counsel for the Contractor, has submitted that the learned High court Judge acted on a wrong principle in ordering a stay in the present F case. He has contended that in view of the nature of the dispute which, he submits, involves only questions of law, and of the character of the submission, this was a case in which the High Court, if it considered that the arbitrator had jurisdiction, would exercise G its discretion and refuse to stay the proceedings. On the other hand, Mr. Banturaki, learned counsel for the Employer, has countered Mr. Lakha's arguments by submitting that the matters in dispute and difference between the parties arose "under" the contract H and were within the scope of the arbitration clause contained in the contract and were, therefore, fit and proper matters to be referred to and decided by an arbitrator appointed under the arbitration clause. He submitted further that there was no sufficient reason why the dispute should not be so referred and decided.

To decide if Mr. Lakha's submissions are correct and should be upheld, we have to I examine the dispute more closely.

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The first two matters in dispute raised in paragraph 6 of the plaint relate to the question A of notice. The Contractor in this paragraph is saying that the two notices issued by the Employer, that is, notices dated 7th June, 1982 and 4th February, 1983, were invalid and did not entitle the Employer to terminate the contact. Further, the Contractor has contended that he was entitled to notice specifically pointing out his defaults at least B fourteen clear days before being served with the notice dated 4th February, 1983. He has said that such a notice, which he calls, "a clear fresh notice" was "necessary and precondition under the said condition before termination by the defendant".With respect, there is clearly a misapprehension on the part of the Contractor as to what the effect of a C notice under Clause 25 of the conditions really is. Its effect is not, as the Contractor appears to think, to terminate the contract. The effect of a notice under this type of a building contract was well described by MEGARRY, J. in the case of Hounslow D L.B.C. v Twickenham Developments [1970] 3 W.LR. 538 at p. 363 in these words:

In one sense it is a mere warning, it does not determine the contract, and it gives the E Contractor an opportunity of mending his ways. On the other hand, the notice has a continuing effect, for even if the Contractor puts matters right within fourteen days the building owner may without any further architect's notice give notice determating the Contractor's employment if the contactor "shall at any time thereafter repeat such default (whether previously repeated or F not)". Even so, the notice determines nothing, the notice loads the pistol, but unless something else occurs, the pistol cannot be discharged and the contract remains a foot.

We think it is clear from what we have said on this matter, that the issues raised by the G Contractor in paragraph 6 of the plaint are not, as contended by the Contractor, purely questions of law. No doubt the Contractor's contentions give rise to interesting questions of law, but as it seems to us, these questions cannot be answered as questions of law, H without ascertaining all the surrounding facts, some of which may be technical and others may not. Thus, to answer the two questions raised by the contractor with regard to the validity of the Employer's notices, one has to consider not only the factual foundation for the Employer's notices but also construe the contract. I

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Mr. Lakha in opposing a stay of proceedings in this case, cited a number of English A reported cases in support of his submissions. We will refer to only two of these cases here. One of the cases cited by Mr. Lakha to which we would like to refer is the case of Re Carlisle; Clegg v Clegg [1910] 1 Ch 495. FARWELL, J. in Crowe v Crossley B (1912) 108 L.T. 11 at p.15 commented on the decision in Re Carlisle as follows:

Both my brothers in this court think that the discretion was properly exercised, and I am unable to say that there is a sufficient reason why the matters should not be referred to arbitration. C The mere fact that there must be questions of law is not sufficient. Certainly

Willes, J. in Seligmann v Le Boutilier (L. Rep. 1CP. 681) said so, and North, J. in a case we have been referred of Re Carlisle; Clegg v Clegg (62 L.T. Rep. 821; 44 Ch. Div 200) put it on the ground D which is perfectly intelligible - that there was only one question in the action, and that was a question as to the construction of the deed of partnership, as I think it was there, and there were no facts in dispute. He said it would be idle to go to arbitration when the first and only E thing would be to state a case for the opinion of the court. That is a perfectly intelligible principle which I should be very glad and ready to follow at any moment.

The other case cited by Mr. Lakha is the case of Barnes v Young [1898] 1 Ch. 414. F This was a case of a partnership in which the article provided that a partner might be expelled for breach of certain acts therein specified, and that if any question should arise whether a case had happened to authorize the exercise of this power, such question should be referred to arbitration. The defendants served a notice on the plaintiff to determine the partnership on the ground that he had committed a breach within the G expulsion clause, but gave no details of the particular act complained of. The plaintiff thereupon brought an action to restrain the defendants from acting on this notice; the defendants moved to stay proceedings and refer all matters in dispute to arbitration. The H Court held that the preliminary question whether or not the notice of expulsion was valid was one more suitable for decision by the court than by an arbitrator, and that as there was a suggestion of a fraudulent exercise of the power of expulsion, the court in the exercise of its discretion, ought not to stay proceedings and enforce a reference. The I decision in Barnes v. Young was approved by the Court of Appeal in Green v.

Howel [1910] 1 Ch. 495, another partnership case cited by Mr. Lakha in argument. A

A common feature of the two cases: Re Carlisle and Barnes v Young is that in both cases the only issue in dispute was the construction of partnership deed, there being no facts in dispute. This is certainly not the case with the two matters in dispute as raised by B the Contractor in paragraph 6 of the plaint.

The third matter of dispute between the Contractor and the Employer is the question of waiver - see paragraph 7 of the plaint. In this connection we think it is pertinent to observe that in view of what Megarry J. said in Hounslow's case with regard to the C effect of a notice under condition 25 of the Building contract, the Contractor's contention on the question of waiver appears to be unsound.

The fourth matter of dispute, which is put as an alternative issue to the other three issues, is set out in paragraph 8 of the plaint and concerns a claim by the Contractor that he "complied with the requisitions in the notice of the 7th June, 1982 as is manifest from the D minutes of the site meetings" This question, as we understand it, is largely a matter of disputed fact which will have to be resolved against the general terms of the contract. As the Contractor seems to be asserting in paragraph 8 of the plaint that from 7th June, 1982 he had been carrying out the work of construction "regularly" and "diligently", it E seems to us that in order to decide whether the Contractor's claim is true, one will have to examine the factual basis of this claim and so determine the meaning of the words "regularly" and "diligently". This exercise will, as it seems to

us, require evidence to be F called from persons who are familiar with the building trade. MEGARRY, J. in Hounslow's case points to the difficulties that are involved in construing the two words: "regularly" and "diligently". He discusses this matter at p. 571 as follows: G

These are elusive words, on which the dictionaries help little. The word convey a sense of activity, of orderly progress, and of industry and perseverance: but such language provides little help on the question of how much activity, progress and so on is to be expected. They are words used in a standard form of building contract in relation to functions to be discharged by H the architect and in those circumstances it may be that there is evidence that could be given, whether of usage among architects, builders and building owners or otherwise, that could be helpful in construing the words. At present all I can say is I

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that I remain somewhat uncertain as to the concept enshrined in these words. A

The last issue in dispute is set out in paragraph 9 of the plaint. The Contractor claims in that paragraph that the Employer, in terminating the contract, acted unreasonably and B vexatiously. Whether the Employer is guilty of what he is accused we think, is a question of fact. These then are matters in dispute between the parties. We do not think that after what we have said on these matters, it can now be seriously contended that the dispute C between the parties is one of pure law. That the dispute involves an investigation and determination of the background facts leading to the alleged termination of the contract was, we think, made clear in argument by both counsel. Much as we are attracted by D Lakha's forceful argument, there is no way we can ignore the law which governs the question which we have to decide. The law on the subject-matter of dispute is clear and well established. We will refer here to only a few of the leading cases which, though not binding on us, lay down clear and sound principles on the subject-matter with which we are concerned.

As an answer to Mr Lakha's main argument that the matters in dispute in this case are E not fit and proper to go to arbitration, one is reminded of a famous passage from the judgment of LORD SELBOURNE in the case of Willesford v Watson, 28 L.T. Rep. 428; L. Rep. 8 Ch. App. 473 at 497 which was cited with approval by COZENS F -HARDY, M.R., in Crowe v Crossley (1912) 108 L.T. 11 at 13, as follows:

Then we are told that this is an arbitrary tribunal final and without appeal, and so forth, and that there are not fit questions to go before the arbitrator. But I think that the Legislature and the Act G of Parliament under which the Court is now asked to act, have given the answer to that argument. If parties choose to determine for themselves that they will have a domestic forum instead of resorting to the ordinary courts, then since the Act of Parliament was passed a H prima facie duty is cast upon the courts to act upon such an agreement.

After quoting the above passage COZENS-HARDY, M.R., discussed at p.14 the question before him in these words: I

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It is said - and said very forcibly by Mr. Clavell Salvell Salter and his junior -that it is apparent A that the questions which have arisen....are really questions of law. And it is said that there cannot be anything more absurd than to refer to a civil engineer difficult questions arising under the law of contract as interpreted and enforced by courts of law in this country. There is B no doubt considerable force in that. But the Arbitration Act 1889 itself seems to me to furnish an answer to that. It is quite clear that Act contemplates that the arbitrator shall deal or may deal with questions of law.

He then went on to discuss the principles which guide the court in the exercise of its C discretion to interfere with the agreement of the parties to submit their differences or disputes arising under a contract to arbitration. He dealt with the matter thus: D

I therefore do not think that it can be enough to say as questions of law of a serious kind will arise here the court ought not in the exercise of its discretion to interfere. This is not a case in E which questions of law can be kept apart from the facts of the case. If, for instance, it had been merely a question of law arising upon the construction of certain words in a lease or a contract of sale, or what not, I can quite conceive that the court might say - as the court has done in one or two cases - that there is only one question of law here, and that it is idle to refer that to arbitration, because the first thing the arbitrator would undoubtedly do would be to refer F that to the court for the decision of the court as a question of law.

It may be noted that in Crowe v Crossley the Court of Appeal granted a stay notwithstanding that the dispute involved difficult questions in the law of contract, which G the arbitrator would be unable to decide, as this was a case in which "it would be as hard for lawyers to understand the machine as for an engineer to understand the law".

In Metropolitan Tunnel etc. Ltd. v London Electric Ry [1926] 371, a contract for H engineering works provided that any disputes arising should be referred to an arbitrator, who was to be an engineer. One of the parties took out a summons for the construction of a clause in the contract. It appeared that evidence would be needed, both as to custom in such matters and as to the meaning of technical terms used, before the clause could be construed. The Court of I

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Appeal, overruling the judge below, held that the proceedings should be stayed. A

We now turn to consider the case of Heyman v Darwins Ltd. [1942] A.C. 356. That was a decision of the House of Lords in which their Lordships had to answer questions which are similar to those which we are required to answer in the present case. In B Heyman v Darwins Ltd. an arbitration clause in a contract provided that "If any dispute shall arise between the parties hereto in respect of this agreement of any of the provisions herein contained or anything arising hereout the same shall be referred for arbitration in accordance with the provision of the Arbitration Act, 1889". A dispute C having arisen between the parties, the appellants commenced an action against the respondents claiming (a) a declaration that the respondents had "repudiated and/or evinced an intention not to perform" the contact and (b) damages. The respondents who admitted the existence of the contract and denied they had repudiated it, applied to have D the action stayed in order that it might be dealt with under the arbitration

clause. CASSELS, J. in chambers held that the issue involved only a question of law and in exercise of his discretion refused to grant a stay. The Court of Appeal allowed the E appeal by the respondents, holding that the arbitration clause applied and that CASSELS, J. had wrongly exercised his discretion. The plaintiffs appealed to the House of Lords. In the House of Lords the plaintiffs argued first that CASSELS, J. in exercising his discretion in favour of the plaintiffs followed no wrong principle and his discretion F should not be interfered with. Secondly, it was contended that the plaintiffs had repudiated the contract and the respondents had accepted this repudiation. Accordingly, the whole contract was at an end and with it the arbitration clause, so that the dispute did not fall within it. The respondents countered by arguing that the contract was never G repudiated by them, and, accordingly, the arbitration clause applied to the dispute. They further argued that CASSELS, J. exercised his discretion wrongly since no difficult questions of law were involved in the interpretation of the agreement or of the correspondence; and that in any case, no sufficient grounds had been shown why the H appellants should not proceed by way of arbitration in accordance with the agreement.

Their Lordships in their considered judgments were unanimous in holding that the dispute fell within the arbitration clause and that the action should be stayed. Since the arguments advanced by the advocates in this case bear some resemblance to those raised by I counsel before the House of Lords, we think it will be useful if

we refer to some excerpts of their Lordships' comments on the principal arguments A advanced before them. On the argument that a repudiation of a contract has the effect of ending the contract and with it the arbitration clause, VISCOUNT SIMON, L.C. put what he conceived to be the correct view of the matter as follows: B

> An arbitration clause is a written submission, agreed to by the parties to the contract, and, like other written submissions to arbitration, must be construed according to its language and in the light of the circumstances in which it is made. If the dispute is whether the contract which contains the clause has ever been entered into at all, that issue cannot go to arbitration under C the clause, for the party who denies that he has ever entered into the contract is thereby denying that he has ever joined in the submission. Similarly, if one party to the alleged contract is contending that it is void ab initio (because, for example, the making of such a contract is D illegal), the arbitration clause cannot operate, for on this view the clause itself also is void. But in a situation where the parties are at one in asserting that they entered into a binding contract, but a difference has arisen between them whether there has been a breach by one side or the E other, or whether circumstances have arisen which have discharged one or both parties from further performance, such differences should be regarded as differences which have arisen "in respect of or "with regard to" or "under" the contract, and an arbitration clause which F uses those or similar, expressions should be construed accordingly.

Commenting on the same matter LORD MACMILLAN made the following observations at pages 370-371: G

If it appears that the dispute is whether there has been a binding contract between the parties, such a dispute cannot be covered by an arbitration clause in the challenged contract. If there has never been a contract at all, there has never been as part of it an agreement to arbitrate. H The greater includes the less. Further, a claim to set aside a contract on such grounds as fraud, dures or essential error cannot be the subject-matter of a reference under an arbitration clause in the contract sought to be set aside. Again, an admittedly binding contract containing a general arbitration clause may stipulate that in certain events the contract shall come to an I end. If a question

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arises whether the contract has for any such reason come to an end I can see no reason why A the arbitrator should not decide that question.

LORD MACMILLAN after discussing the question of repudiation and its effect on the B existence of a contract, made the following pertinent observations regarding the true nature and function of an arbitration clause in a contract. He said:

I venture to think that not enough attention has been directed to the true nature and function of C an arbitration clause in a contract. It is quite distinct from the other clauses. The other clauses set out the obligations which the parties undertake towards each other but the arbitration clause does not impose on one of the parties an obligation in favour of the other. It embodies the agreement of both parties that, if any dispute arises with regard to the D obligations which the one party has undertaken to the other, such dispute shall be settled by a tribunal of their own constitution. And there is this very material difference, that whereas in an ordinary contract the obligation of the parties to each other cannot in general be specifically E enforced and breach of them results only in damages, the arbitration clause can be specifically enforced by the machinery of the Arbitration Acts. The appropriate remedy for breach of the agreement to arbitrate is not damages, but is enforcement. Moreover, there is F the further significant difference that the courts in England have a discretionary power of dispensation as regards arbitration clauses which they do not possess as regards the other clauses of contract.

Although the principles of law ably enunciated by VISCOUNT SIMON, L.C. and G LORD MACMILLAN in the above excerpts fully demonstrate the futility of Mr. Lakha's arguments in this court and in the court below, this outline of the decided cases which are relevant to the matter before us, would be incomplete without a reference to the judgment of LORD WRIGHT in Heyman v Darwins Ltd. That master of the H English common law answers the question whether the issues in dispute in that case were fit and proper matters to be referred to arbitration, in these words at page 389:

I need not quote authorities for what has been said so often, that under a general submission I the arbitrator is appointed to

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decide issues both of fact and of law. In the background, indeed, is the courts, jurisdiction to A set aside an award if it is bad in law on its face, and the opinion of the court on issues of

law may be invoked by means of cases stated under the Acts of 1889 and 1934, but, if the submission is general, it will require some substantial reason to induce the court to deny its B due effect to the agreement of the parties to submit the whole dispute, whether it includes both fact and law or is limited to either fact or law. In the present case I can find no sufficient reason. The dispute is of the most ordinary character. C

This is as clear a statement of the law on the subject with which we are concerned as anyone is likely to come across. The Employer and the Contractor in this case by their agreement, which follows closely the standard R.I.B.A. form of contract, have chosen to submit their "disputes or differences" as to the construction of the contract or as to any D matter or anything of whatever nature arising thereunder or in connection therewith", to arbitration. On the authorities reviewed above, it seems to us that the operation of the arbitration clause in the contract to which this case relates does not depend on the question whether the dispute that has arisen includes both fact and law or is merely E limited to either fact or law. If it is clear from the submission, as it is in this case, that the parties have agreed to submit all their "disputes or differences arising "under" the contract to an arbitrator, then the dispute must go to arbitration unless there is some good reason to justify the court to override the agreement of the parties. In the present case we can F find no good reason to do so and we are accordingly of the opinion that the learned High Court Judge properly exercised his discretion in ordering a stay of proceedings in this case.

In the result this appeal fails and is dismissed with costs. G

Appeal dismissed

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A

[zRPz]CALICO TEXTILE INDUSTRIES LTD. v PYARALIESMAIL PREMJI 1983 TLR 28 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Makame JJA and Kisanga JJA

3 November 1983

CIVIL APPEAL 16 OF 1983 B

Flynote

Civil Practice and Procedure - Appeal - Failure to file appeal within prescribed time - Appellant represented by Advocate - Whether appeal to be admitted - R.83 Court of Appeal Rules. C

Civil Practice and Procedure - Appeal - Appeal of time - Advocates failure to check the law properly - Whether sufficient ground.

-Headnote

The appellant who was represented by an advocate sought to file his appeal out of time. D The respondent applied to have his Notice of Appeal struck out for failure to institute his appeal within the prescribed period.

Held: Failure of a party's advocate to check the law is not sufficient ground for allowing E an appeal out of time.
Case Information
Application allowed.
No case referred to. F
Patel for the appellant
M.A. Lakha for the respondent.
[zJDz]Judgment
Nyalali, C.J. read the following order of the court. This is an application brought by the G Respondent under Rule 82 of the Tanzania Court of Appeal Rules 1979 to have the Notice of Appeal struck out for failure by the appellant to institute his appeal within the period prescribed by Rule 83 of the Tanzania Court of Appeal Rules, 1979. The application is supported by affidavit of Mr. Lakha, learned Advocate for Respondent. H
Having heard both sides, it is quite clear that the appeal was filed hopelessly out of time. The reason for the delay advanced by Mr. Patel for the appellant is that he did not check the requirements of the law properly. Surely this cannot be sufficient reason for allowing I Appellant, who is represented by a learned Advocate, to file his appeal so much out of time.
1983 TLR p29
We therefore allow the application and order the notice of appeal be struck out with A costs.
B Application allowed.
1983 TLR p29
C
[zRPz]OMARI YUSUFU v MWAJUMA YUSUFU AND ANOTHER 1983 TLR 29 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mwakasendo JJA, Makame JJA and Kisanga JJA

28 November 1983
CIVIL APPLICATION 3 OF 1983
Flynote
Civil Practice and Procedure - Appeal originating from Primary Court - Whether decision of D the High Court in matters originating from the Primary Court appealable - Appellate Jurisdiction Act, 1979.
Civil Practice and Procedure - Appeal originating from Primary Court - Certification of point of law - Whether Court of Appeal has jurisdiction - Rule 46 (3) Court of Appeal Rules. E
-Headnote
The applicant applied for extension of time to file an application for leave to appeal and for leave to appeal to the Court of Appeal. An application to the High Court by the applicant for a certificate that a point of law was involved had been refused. F

Held: (i) Under s.4(2) (c) of the Appellate Jurisdiction Act, it is the High Court alone which has jurisdiction to entertain an application for a certificate that a point of law is involved so that matters originating from the Primary Court can go to the Court of G Appeal;

(ii) rule 46(3) Court of Appeal Rules is ultra vires the Appellate Jurisdiction Act in so far as it envisages a further application for the certificate to the Court of Appeal following a refusal by the High Court to grant the certificate.

Case Information

Application struck out. H

No case referred to.

Rwebangira for the applicant. I

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KISANGA JA

[zJDz]Judgment

Kisanga, J.A. read the following order of the court: This is an application for the A extension of time to file an application for leave to appeal and for leave to appeal to this Court.

We have to point out at once that the application is somewhat confused and completely misconceived. The proceedings leading to the application relate to a matter originating B from the Primary Court going to the District Court and then to the High Court. An appeal in such a matter therefore is governed by the provisions of section 4 (2) (c) of the Appellate Jurisdiction Act, 1979 which provides:

(2) Notwithstanding the provisions of subsection (1) C

(a) ...

(b) ...

(c) No appeal shall lie against any decision or order of the High Court in any proceedings D under Head (c) of Part III of the Magistrates' Court Act, 1963, unless the High Court certifies that a point of law is involved in the decision or order.

The record shows that an application under this provision was made to the High Court E for a certificate that a point of law was involved, but the application was refused. Mrs. Rwebangira appearing for the applicant before us stated in effect that she was now asking this Court to grant such a certificate, adding that she was relying for that F application on the same provisions of section 4 (2) (c) quoted above.

On a true understanding of the provisions of section 4(2) (c) of the Appellate Jurisdiction Act, we think that it is the High Court alone which has jurisdiction to entertain an application for a certificate that a point of law is involved. The Court of Appeal has no G concurrent jurisdiction over such an application. It is to be noted that section 4(2) (c) curtails or restricts the broad power conferred by section 4(1) (c). This latter provision confers broad powers on the High Court and the Court of Appeal alike to grant leave to appeal to the court of Appeal in certain matters. But section 4(2) (c) clearly seeks to H restrict that power to the High Court alone. In other words, had section 4 (2) (c) not been enacted, then both the High Court and the Court of Appeal would have jurisdiction to entertain the application for a certificate that a point of law is

involved. But the enactment of this provision was clearly intended to confer on the High Court alone the I jurisdiction to entertain such application. To

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KISANGA JA

construe section 4 (2) (c) otherwise would clearly make that provision superfluous in A view of section 4 (1) (c) which confers on both the High Court and the Court of Appeal broad powers to grant leave to appeal to the Court of Appeal. It may very well be that where, as here, the High Court refuses to grant a certificate that a point of law is involved, the matter may probably be brought before the Court of Appeal by way of B appeal against the order refusing to grant such application, but we are of the settled view that the matter could not be brought here by way of application or further application.

In holding this view we are aware of the provisions of rule 46(3) of the Tanzania Court of Appeal Rules which appear to suggest that a matter such as this one could be brought C to this Court by way of an application. The said Rules are made under the Appellate Jurisdiction Act 1979 and rule 46(3) provides that:

(3) Every application for leave to appeal shall be accompanied by a copy of the decision D against which it is desired to appeal and, where application had been made to the High Court for a certificate that a point of law is involved or for leave to appeal and the application has been refused, by a copy of the High Court refusing that application. E

This sub-rule clearly envisages that where the High Court has refused to grant a certificate that a point of law is involved, the aggrieved party can seek redress by way of a further application to the Court of Appeal. But this contravenes the provisions of F section 4 (2) (c) of the Appellate Jurisdiction Act set out earlier which, as has been shown, confers on the High court alone jurisdiction to entertain such application. Thus to the extent that the sub-rule envisages further application to the Court of Appeal following a refusal by the High Court to grant the certificate, the sub-rule is ultra vires the parent G Act, in which case the latter prevails.

In the result we are satisfied that this application is incompetent and is accordingly struck out. We make no order for costs as the respondent did not appear. H

Application struck out.

1983 TLR p32

A

[zRPz]BI HAWA MOHAMED v ALLY SEFU 1983 TLR 32 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Makame JJA and Kisanga JJA

29 November 1983

CIVIL APPEAL 9 OF 1983 B

Flynote

Family Law - Matrimonial property - Whether domestic services of a house wife amount to contribution in acquisition of matrimonial assets.

Family Law - Matrimonial assets - Family assets - Assets envisaged u/s 114 (1) of the Law C of Marriage Act, 1971 - Matrimonial assets acquired by spouses during marriage by their joint efforts.

-Headnote

The appellant and respondent were wife and husband respectively until the dissolution of D their marriage by a court decree of the Primary Court of Ilala District at Kariakoo, Dar es Salaam in 1980. In subsequent proceedings the Primary Court held that the appellant was not entitled to any share in the matrimonial assets as she was a mere wife and that the house was bought by the husband's money. On appeal to the High Court, E the Primary Court's decision was substantially upheld. This is a second appeal.

Held: (i) Since the welfare of the family is an essential component of the economic activities of a family man or woman it is proper to consider contribution by a spouse to F the welfare of the family as contribution to the acquisition of matrimonial or family assets;

(ii) the "joint efforts" and 'work towards the acquiring of the assets' have to be construed as embracing the domestic "efforts' or "work" of husband and wife;

(iii) where a spouse commits a matrimonial mis-conduct which reduced to G nothing her contribution towards the welfare of the family and consequential acquisition of matrimonial or family assets she or he would not be entitled to a share in the property.

Case Information

Appeal dismissed. H

Cases referred to:

1. Zawadi Abdallah v Ibrahim Iddi [1981] T.L.R. 311
2. Rukia Diwani Konzi v Abdallah Issa Kihenya Matr. Cause No. 6 of 1971. I 1983 TLR p33
3. Bateman v Bateman [1979] FAM 25 A
4. Iddi Kunganya v Ali Mpate [1967] HCD 49
5. Egerton v Brownlow [1853] 4 HL Cas 196
6. Martin v Martin [1976] 3 All ER 625

R.C. Kesaria for the appellant. B

[zJDz]Judgment

Nyalali, C.J., read the following considered judgment of the court: The appellant Bi Hawa Mohamed and Ally Seifu were wife and husband respectively until the dissolution C of their marriage by court decree of the Primary Court of Ilala District, at Kariakoo, Dar es Salaam in 1980. In subsequent proceedings, seeking the division of matrimonial assets, the Primary Court held in effect that Bi Hawa Mohamed was not entitled to any share in the matrimonial assets, as to use the words of one of the assessors, "She was D only a mere wife, and the house was bought by the husband with his own money". The Primary Court went on to accept the offer made by Ally Seifu to pay a sum of shs 2,000/- as a parting gift to her in accordance with his religious tenets. On appeal, the High Court, Kimicha, J. substantially agreed with the views of

the trial Primary Court but increased the amount of the parting gift to shs 3,000/=. Bi Hawa Mohamed was further E aggrieved by the decision of the High Court and she obtained legal aid from the Tanganyika Law Society, hence this appeal to this Court. Mr. R.C. Kesaria, learned Advocate, appeared on legal aid for the appellant. The Respondent appeared in person. The High Court certified that a point of law was involved. It can be broadly state as F follows:

Did the High Court and Primary Court err in law in holding the view that domestic services of a housewife do not amount to contributions made by her in the acquisition of matrimonial G assets.

From the proceedings in the High Court and Primary Court the following facts were established on the evidence. The appellant and respondent were married according to H Islamic rites in Mombasa, Kenya, sometime in 1971. The respondent had a house in Mombasa and they used it as the matrimonial home. Furthermore, the respondent was a Seaman and his work involved travelling abroad for many months. While so travelling, he would provide adequate maintenance for the appellant, who remained at Mombasa, to I look after the matrimonial home. On one occasion, he gave her an

additional sum of shs. 18,000/= to set up business activities. She however failed to A establish any business and the money cannot be accounted for. In 1974, the respondent purchased a house in Dar es Salaam with his own money. This house is House No. 40 along Swahili/Mhoro Streets and is the subject of this case. In 1975 the spouses moved B from Mombasa to this house in Dar es Salaam and they were using this house as the matrimonial home at the time of their divorce.

The power of the Court to divide matrimonial assets is derived from section 114(1) of the Law of Marriage Act, 1971 which states: C

114(1) The court shall have power, when granting or subsequent to the grant of a decree of separation or divorce, to order the division between the parties of any assets acquired by them during the marriage by their joint efforts or to order the sale of any such asset and the division D between the parties of the proceeds of sale.

It is apparent from the citation and the wording of section 114 that the assets envisaged thereat must firstly be matrimonial assets, and secondly, they must have been acquired E by them during the marriage by their joint efforts.

This first important point of law for consideration in this case is what constitutes matrimonial assets for purposes of section 114. In our considered view, the term "matrimonial assets" means the same thing as what is otherwise described as 'family F assets'. Under paragraph 1064 of Lord Hailsham's Halsbury's Laws of England 4th Edition, p. 491, it is stated:

The phrase "family assets" has been described as a convenient way of expressing an G important concept; it refers to those things which are acquired by one or other or both of the parties, with the intention that there should be continuing provision for them and their children during their joint lives, and used for the benefit of the family as a whole. The family assets can be divided into two parts (1) those which are of a capital nature, such as the matrimonial H

home and the furniture in it (2) those which are of a revenue producing nature such as the earning power of husband and wife.

The next important point of law for consideration and decision in this case is whether the I assets in question - that is House No. 40

situated along Swahili/Mhoro Streets in Dar es Salaam was a matrimonial or family asset A at the time of dissolution of the marriage of the parties. The answer here is easy. On the facts established in the two courts below, that house was used by the parties as their matrimonial home after they moved from Mombasa to Dar es Salaam. It was therefore a matrimonial or family asset. B

The next point of law for consideration and decision is whether this matrimonial or family asset is subject to division between the parties under the provisions of section 114 (1). It is apparent that the Court's power to divide matrimonial or family assets under section 114(1) is invoked only when the following conditions exist: C

(i) When the Court has granted or is granting a decree of divorce or separation; and

(ii) When there are matrimonial or family assets which were acquired by the parties during the marriage; and D

(iii) When the acquisition of such assets was brought about by the joint efforts of the parties.

There is no controversy regarding the existence of conditions (i) and (ii). The real dispute centres on condition (iii) - that is, on whether the matrimonial home was acquired E by the joint efforts of the appellant and respondent.

It is the appellant wife's contention that her efforts in performing her domestic duties had the effect of placing the respondent husband in a financial position to buy the house in F question. As already mentioned, the two courts below rejected this contention on the ground that performance of domestic duties by a housewife does not count in the acquisition of matrimonial or family assets. The fundamental question now is whether this view of the two courts below is erroneous. G

We are aware that there are two schools of thought which currently contend in the High Court on this issue. In the case of Zawadi Abdallah v Ibrahim Iddi, [1981] TLR 311 Mapigano, J. referred to these two schools of thought by stating: H

There are those who maintain that under section 114 the term joint effort is limited to direct contribution by a spouse by way of money, property and work, to the acquisition of the asset in question and that housekeeping and raising the children count for nothing. I

On the other hand, there are those who take the view that household work must be regarded A as part of the joint effort or contribution towards the acquisition of any asset by the husband and that the wife's citing of the husband's marriage vow and the fact that she has been running the home operate to entitle her to a slice in her husband's estate. You may, if you B

prefer, describe the two constructions as narrow and broad, respectively. The question which I am called upon to answer in this case is which one of those views is correct. This is an important matter and I confess I have not found it all easy. To my knowledge not much has C been said about it in this country and there is a paucity of judicial pronouncement on the matter. Such few decisions as there are either way and happily I am not bound by any.

Those who champion the broad view see no valid distinction, in principle, between the wife D who takes up employment or carries on business or profession and the one who remains at home and devotes her time running the home. They would construe the terms contribution and joint efforts liberally to include domestic services rendered by the full time "domestic" wife. E

They would advance several reasons to back up their viewpoint. Among the reasons:

(1) That it is the philosophy and spirit of our time and that it is quite in harmony with F realities and changed social and economic circumstances, (2) that the domestic work may be more valuable to family than of a wife who is self-earning; (3) that the husband can hardly conduct his business if his wife does not cook the dinner and mind the children; (4) that in certain instances the wife may have sacrificed her own career on the G altar of matrimonial life and if say after twenty or thirty years of marriage her husband for old man's reasons or no reason whatsoever (as probably was the position in the case before me), sees fit to banish her, the decree of divorce may have the further undesirable and sad effect of practically thrusting her into destitution; and (5) that in yet certain H instances the estate of the husband may have been built up by the industry of the husband and the thrift and prudence of the wife in running the home and that, therefore, it is in conformity with one's sense of justice and fairness that she should share as of right in the fruits of his success. They would find encouragement and comfort in the words of I Scarman,

L.J. which appear in the Medico-Legal Journal, 1966 Vol. 34 at p.19 that: A

It is recognised that a married woman who brought up a family and maintained a home was thereby actually supporting her husband in his bread-winning activities by releasing him from B family duty. Quite plainly if the marriage broke down she must have a claim upon the family funds by reason of that vital contribution to the family life. It was here that law of England (as it then was) went wrong. C

These are, I think, strong and weighty reasons and no doubt that the strict operation of the doctrine of separate property can occasion a great deal of distress to a divorced woman. But we should bear in mind that the whole question is a legal one.

Judge Makame for one has taken stand on the side of the liberal school. Sitting in this D court at this place he felt himself prepared and able to say that the domestic services that a wife renders count. That was in the case of Rukia Diwani Kinzi v Abdalah Issa Kihenya - Matrimonial Cause No. 6 of 1971. His reading of section 114 does not square with that of the magistrate who heard this case. The learned judge thought that E the section has sufficient width to embrace the broad view. Stated the learned judge:

There is a school of thought which says that domestic services a housewife renders do not F count when it comes to acquisition, and therefore the subsequent possible division, of matrimonial assets...

I find this view too narrow and conservative and I must confess my inability to subscribe to it. G Section 114 of the Law of Marriage Act does not really support the school of thought referred to and is, in my view, capable of accommodating a more liberal interpretation.

A little further on Mapigano, J. continued. H

Even in a country like Britain, where salaried married women are quite common, the modern progressive view, with which I wish to associate myself, is that looking after the home and bringing up the children is a valuable contribution. See for I

example the recent case of Bateman v Bateman, The law Report 1979 FAM 25. A

But be it noted that in this respect our statutory law compares unfavourably with the English Law. The perimeters or ambits of the English Law are simply and expressly more extensive. B The English case to which the learned judge made reference was an application by the wife for financial provision and adjustment of property in her favour, upon the dissolution of the marriage between her and the respondent. The decision of the court was manifestly predicated upon the provisions of the English Matrimonial Causes Act, 1973, which makes C explicitly provisions to the effect that in adjusting property rights under that Act, the contribution made by each of the parties to the welfare of the family is a relevant consideration to be taken into account. So in my respectful opinion the decision in that case can hardly be helpful or persuasive. D

Mapigano, J. continues:

As shown, in this case the learned magistrate expressed and followed the narrow E interpretation. He argued that since traditionally looking after the household and caring for the children is the occupation and responsibility of wife, just as the feeding and clothing the family is the occupation and responsibility of the husband, then that should not be considered as a F contribution or joint effort. Was he wrong? At the risk of being deemed a conservative, though I would like to believe that I am not, I must say that on the view that I take of the law I feel compelled to pronounce that the decision of the learned magistrate is, in the final analysis, sound. I share his opinion that under section 114 the housework of a wife and G looking after the children are not to be equated with the husband's work for the purpose of evaluating contributions to marital property. I hold as he did that such domestic services are not to be taken into consideration when the court is exercising its powers under the section. I will give my reasons. H

First, I think that the broad view is inextricably linked with other matters. It does bring to the fore other issues which are arguably troublesome in regard to which the statute does not appear to make any clear provisions. Two such issues come to my mind. One, there would be in I many cases the question whether the matter is to be decided with reference to the

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matrimonial differences which may in fact have made it necessary to consider the matter in A the light of the principle that no one should be allowed to benefit from his own wrong. To put it interrogatively, will a wife be allowed to benefit from a marriage which she has wrecked? Two there would be the relationship between the order under section 144 and the order which th e B court may make with regard to maintenance under section 115.

Secondly, and I regard this to be a stronger point, the question can be asked: Is there really anything in law to give any strong colour to the suggestion that is put forward by the liberal C school? Certainly it was not part of our own law before the enactment of the Law of Marriage Act. See for example Iddi Kungunya v Ali Mpate [1967] HCD 49. And to be sure, there is no provision in the Law of Marriage Act which says so in terms. That throws up a question of D judicial policy. It is this, that where there are no clear rules of law governing matters of such general social importance, matters which directly affect the interests of almost every matrimonial couple and which raise issues that might be the subject of public controversy and on which laymen are as well able to decide as lawyers, can the courts properly proceed on E their view of public policy? (There is the warning uttered by a judge over a century and half ago that public policy is a most unruly horse, you can never know where it will carry you.) Would it not be to encroach on the province of the Legislature? Patel, J. thought so. He observed briskly F in the case of Hamidi Amir Hamid (supra) that if the Legislature had intended that domestic services performed by a wife be regarded a contribution and joint effort it would have said so in language clear and plain. But the liberal school might put forth the line that the law should G be innovative and responsive to societal aspirations. I would embrace that principle. I do understand that judges must develop the law and indeed it is now generally accepted that sometimes they must, and do, legislate. The myth that common law judges merely enunciate H or discover the existing law should now stand discredited. Blackstone was, I think, one of the leading proponents of that theory. However, as the great American judge Holmes once said, and many subscribe to that view point, the judges should do so only interstitially, and with molecular rather than molar motions. In 1969 (in his paper which he read at the University I college Dar es Salaam) Sir

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Charles Newbold, then the President of the Court of Appeal for East Africa, put the point in this A way.

"The power of the judges to make law is a power which can be exercised within very circumscribed limits. The power is exercised in two fields. The first is where rights and B duties of a member of the community are determined by legislation; and in that field the circumscribing limits are the doctrines of equity and the indefinable but real customs and needs of the community. Within the field in which rights and duties are specified by legislation a judge's duty is to apply and enforce the legislation and, save C as regards subordinate legislation, he cannot challenge the validity or effectiveness of the legislation".

Further, I think perhaps I should read a short passage from the decision of Parke J in Egerton v Brownlow (1853) 4 HL Cas 196, a passage which has been frequently quoted with approval D by many judges including Sir Charles Newbold:

"It is the province of the statesman, and not the Lawyer, to discuss, and of the Legislature to determine, what is best for the public good and to provide by proper enactments. It is the province of the judge to expound the law only; the written from the E decisions of our predecessors and of our existing courts, from textwriters of acknowledged authority, and upon the principles to be clearly deduced from them by sound reason and just inference; not to speculate upon what is best, in his opinion, for the advantage of the community". F

In my considered opinion, I think that if at all there is any grey area in respect of the matter, the appropriate solution to the problem lies in the intervention of the Legislature and not in judicial Legislation. But is there a grey area? That leads me to my next point and this is where I would put the emphasis.

I apprehend that to follow the broad view would be to give recognition to the concept of G community of property between the husband and the wife -communio bonorum - and perhaps with its logical corollary community of loss and debts. And, specifically, it would run directly counter to section 58 and 60 (1) of the Law of Marriage Act and empty those two provisions of H all meaning and effect. Those sections are some of the striking features of the statute and seem to reflect the notion of separate property.

They say that subject to the provision of section 59 (which relate to matrimonial homes) and to I any agreement the parties

may make, any property acquired in the name of the husband or of the wife, presumptively A belongs exclusively to that person. There are material which strongly point to a definite legislative intention that domestic services should not count when the court is dealing with the matter of division of assets under section 114. In this regard attention should be called to the B fact that the Act is based on the work of the Kenya Commission on the Law of Marriage and Divorce which was headed by Spry J.A. and which is comprised in the Commission's report of August, 1968. The Act borrows heavily from the draft bill prepared by the said commission - C Appendix VII to the report. For instance our sections 58, 60 and 114 are, respectively, exactly the same as sections 66, 68 and 123 of the draft bill. Now the view and recommendations of the Spry Commission on the subject now at hand are contained in paragraphs 177-184. It is D patently clear that the Commission rejected the broad view and section 123 of the draft bill must, therefore, be taken to embody or reflect that standpoint. Our Government White Paper No. 1 of 1969 - which preceded the enactment contains nothing which suggests a difference between the ideas of the Spry Commission and those of the authors of the White Paper. The E White Paper has only a few words about the subject. It is the last sentence of paragraph 19 and it merely says that:

"The proposed law should provide expressly that either spouse may own his or her F own separate property which he or she owned before, or acquired after, marriage". I am well

aware that the Spry Report cannot be treated as authority in any technical sense. But I find it valuable because it provides the background to our Law and helps to discover the intention of the Legislature. I think I can treat the background as strongly G indicating that our Legislature adopted the ideas and philosophy contained in that report. It should, therefore, be inferred that the purpose for which section 114 was enacted by our Legislature was not all that broad as canvassed by the liberal school. It seems, from a historical perspective, that the section was not designed to help a H married woman who has no property or has failed to acquire any during marriage because of household duties. In other words, it was not written into section 114 that a wife's marital status and duties should per se make her a partner in the husband's I economic enterprises or gains. That in my opinion, is the true construction of the section.

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I am not of course saying that is good law. I am not for instance gainsaying the fact that one of A the ills of the breakdown of marriage is the economic hardship that a woman may have to suffer, where, as is common in Tanzania, the woman has not acquired any property, and I think, therefore, that there is much to commend the liberal viewpoint to serious reflection, and B consideration. What I am saying is that the broad view does not comport with the history of the legislation and that the other provisions of the Act would make little sense if that view is adopted. I am saying that if the law is unsatisfactory the proper solution to the problem should C be legislative rather than judicial.

We have, with respect, quoted Mapigano, J. at length because he appears to deal adequately with the arguments in favour of the opposite views of the High Court and D because we are satisfied that the narrow view is wrong and the broad view is correct. We hereafter demonstrate what we mean.

Although it is correct to say that under English Law, the joint efforts or contributions of E spouses is considered directly in relation to the welfare of the family rather than directly in relation to the acquisition of matrimonial or family assets, we do not see any difference between the effect of English Law and our Law on this issue since the welfare of the family is an essential component of the economic activities of a family man or women. So, it is proper to consider contribution by a spouse to the welfare of the family as F contribution to the acquisition of matrimonial or family assets.

With regard to the fear that the broad view might result in a wife being "allowed to benefit from a marriage which she has wrecked" we think, with respect, that it is misguided because what is in issue is the wife's contribution or efforts towards the G acquisition of matrimonial or family assets, and not her contribution towards the breakdown of the marriage. Of course there may be cases where a wife's misbehaviour may amount to failure to contribute towards the welfare of the family and thus failure to H contribute towards the acquisition of matrimonial or family assets; but this has to be decided in accordance with the facts of each individual case.

As to the alleged difficulties of making orders under section 114 along with orders under section 115 of the Law of Marriage Act, we do not think that the provision of these two I sections are

contradictory or irreconcilable. It is apparent that the two sections deal with different matters. Section 114 deals with the apportionment

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of family assets and liabilities in general, whereas section 115 concerns assignment of a A specific liability - that is, the liability to maintain a wife or former wife. Moreover where a former husband is ordered to maintain his former wife after divorce or separation, such an order amounts to a revenue producing asset vested in the wife within the scope of the B second category of family assets as defined under paragraph 1064 of Halsbury's Laws of England cited earlier on, and has to be taken into account in the division of available matrimonial or family assets.

The point made is that the broad approach to the issue presupposed the existence of C common ownership of matrimonial or family assets.

Contrary to the concept of separate ownership recognized under sections 58 and 60 is not correct since the issue of division of matrimonial or family assets arises only when the Court is granting or has granted a decree of separation or divorce but not otherwise. D

As to the point to the effect that the broad view of the law on the issue is not supported by authority existing before the enactment of the Law of Marriage Act, we do not think that it is logical or sensible to take the absence of earlier authority as precluding progress in the law of the Land. E

The argument that the broad view of the law amounts in effect to judicial legislation, is not supportable since the court is not making or introducing a new rule in a blank or grey area of social relations but is interpreting existing statutory provisions - that is - the words "their joint efforts" and "the contributions made by each party in money, property F or work towards the acquiring of the assets" used under section 114.

Undoubtedly, these provisions are not free from ambiguity. In such a situation the court has to be guided by the established rules of construction of statutes. Mapigano, J. used G the report of the Kenya Commission on the Law of Marriage and Divorce which, it is said, was the basis of our Law of Marriage Act, 1971. We think such a report should be used only as a last resort upon failure to make sense of these statutory provisions on application of the normal rules of construction. H

One such normal rule of construction of ambiguous provisions is the MISCHIEF RULE. Under this rule, the court, in looking for the true meaning of ambiguous statutory provisions, is guided by the defect or mischief which the statute was enacted to rectify or cure. On examination of the Law of Marriage Act, 1971, and the law as it existed before I its enactment, one cannot fail to notice that

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the mischief which the Law of Marriage Act, 1971 sought to cure or rectify was what A may be described as the traditional exploitation and oppression of married women by their husbands.

It is apparent that the Act seeks to liberate married women from such exploitation and oppression by reducing the traditional inequality between them and their husbands in so B far as their respective domestic rights and duties are concerned. Although certain features of traditional inequality still exist under the Act, such as polygamous marriages, these do not detract from the over-all purpose of the Act as an instrument of liberation and equality between the sexes. C

Guided by this objective of the Act, we are satisfied that the "joint efforts" and "work towards the acquiring of the assets" have to be construed as embracing the domestic "efforts" or "work" of husband and wife.

The other point of law for consideration and decision in this case is whether the appellant D (former wife) is entitled to any share in the house in question. On the facts established by the two courts below, it is apparent that the appellant's domestic "efforts" or "work" consisted mainly in looking after the matrimonial home. She neither cooked for nor E washed clothes for her husband nor did she make his bed except on the few occasions when he was not travelling in ships abroad. Moreover the couple had no children for her to take care of. As the respondent (former husband) was frequently away from home while working as a Seamen, it is obvious that the main beneficiary of such "effort" or F "work" was not the respondent but the appellant herself who lived in the house. Of course this does not mean that her domestic "efforts" or "work" was worthless. It is common knowledge that lack of care of the house results in deterioration of such house.

The principles which guide a court in determining the shares of husband and wife in G matrimonial or family assets are spelled out under sub-section 2 of section 114 which states.

(2) In exercising the power conferred by subsection (1), the court shall have regard:

(a) to the custom of the community to which the parties belong, H

(b) to the extent of the contributions made by each party in money, property or work towards the acquiring of the assets. I

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(c) to the needs of the infant children, if any, of the marriage, and A subject to those considerations, shall incline towards equality of division.

On the established facts of this case, it would seem that the principles stated in (a) and (b) are the only ones relevant case. The parties are Moslems, and it was established that B as a Moslem (or at any rate according to their own sect of Islam) the respondent is expected to give a parting gift to his former wife according to his abilities. We are satisfied that such religious practice, which was undisputed, can properly be construed C as a "custom of the community to which the parties belong". The High Court found that the appellant was entitled to shs. 3,000/= under this head. The record shows that she received the money in court. We find no reason to interfere with this payment.

With regard to the principle stated under paragraph (b) of sub-section 2 of section 114, D it is evident that the extent of the appellant's contribution is indicated by her "efforts" or "work" in looking after matrimonial home as against the respondent's performance of his own part of

domestic obligations towards the appellant. On the established facts the respondent adequately provided for the maintenance and accommodation of the E appellant. As a matter of fact, no complaint is made against him in respect of performance of domestic duties towards his former wife. The question arises whether this diligent performance of his own domestic duties can be taken as disentitling the appellant from claiming a share in matrimonial or family assets. We do not think so. The F correct approach is that husband and wife, in performing their domestic duties are to be treated as working not only for their current needs but also for their future needs. In the present case, the appellant, in looking after the matrimonial home, must be regarded G as working not only for her current needs but also for her future needs and such future has to be provided from the matrimonial or family assets jointly acquired during the marriage in keeping with the extent of her contribution.

On the facts of this case, the appellant was paid a sum of Shs. 18,000/= apparently H when the spouses were still resident in Mombasa. The money was to be used by her to set up some family business. She did not use the money for the purpose it was intended. She apparently squandered it away. What is the significance of these facts?

There are two ways of looking at this situation. Firstly the money can be regarded as an I advance made by the respondent

towards the future needs of the appellant. Taking into account the nature of the A appellant's contribution, the advance of shs. 18,000/= at the time was in our considered view sufficient provision for the future needs of the appellant and she is not entitled to claim a further share in the matrimonial or family assets. Secondly, the squandering of B that money by the appellant when weighed against her contribution, can be regarded as a matrimonial misconduct which reduced to nothing her contribution towards the welfare of the family and the consequential acquisition of matrimonial or family assets. As was said in the English case of Martin v Martin [1976] 3 All ER. 629 by CAIRNS, L.J: C

> ...Such conduct must be taken into account because a spouse cannot be allowed to fritter away assets by extravagant living or reckless speculation and then to claim as great a share D of what is left as he would have been entitled to if he had behaved reasonably.

We are satisfied that on this basis also, the appellant is not entitled to claim any share in E the available matrimonial or family assets. So this leaves only the sum of shs. 3,000/= already paid and received in accordance with the religious custom of the parties. In the final analysis therefore, this appeal fails and we hereby dismiss it. Bearing in mind that this is a legal aid case, we see no reason to order the appellant to pay costs. Each party therefore is to bear his or her own costs and we order accordingly. F

Appeal dismissed.

A

[zRPz]IN THE MATTER OF AN INTENDED APPEAL BETWEEN SEKULU CONSTRUCTION CO LTD AND M.B.S. FUBILE AND ANOTHER 1983 TLR 47 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mwakasendo JJA, Makame JJA and Kisanga JJA

9 November 1983 B
CIVIL APPLICATION 2 OF 1983
Flynote
Civil Practice and Procedure - Revision - Notice of Motion to revise or nullify an order of stay of execution - Whether Court of Appeal has jurisdiction - s.3 (1) and 3(2) Appellate C Jurisdiction Act 1979, s.38 Civil Procedure Code Act No. 49 of 1966 rr.2 and 36 Court of Appeal Rules, O.XLII, R.1 Civil Procedure Code.
Civil Practice and Procedure - Powers of the Court of Appeal - Appellate Jurisdiction Act - Whether Court of Appeal has powers of High Court D
Civil Practice and Procedure - Appeal to Court of Appeal - Definition of - R.2 Court of Appeal Rules.
-Headnote
By a Notice of Motion, the applicant moved the Court of Appeal to revise or nullify an E order of Stay of Execution made by the High Court following a judgment in which the applicant was the successful plaintiff. A preliminary objection was raised that the application was incompetent since there was no appeal before the Court.
Held: (i) In the absence of an appeal or an intended appeal, the Court of Appeal does F not have jurisdiction to revise an order of the High Court;
(ii) the function of the Court of Appeal is to hear appeals;
(iii) an appeal to the Court of Appeal includes an intended appeal; G
(iv) the Court of Appeal has certain powers of the High Court but these are in the context of the need to determine an appeal only.
Per Curiam: The High Court can be moved to review its own decision only if new and important matter or evidence comes to light in certain circumstances. H
Case Information
Application struck out.
No case referred to. I
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MAKAME JA
R.C. Kesaria and Mchora for the applicant. A
T.J.R. Tarimo for the respondent.
[zJDz]Judgment
Makame, J.A.: delivered the following ruling of the court: The applicant, SEKULU CONSTRUCTION CO. LTD., has brought a Notice of Motion to move this court to B revise or nullify an order of Stay of Execution made by the learned Judge Kiongozi, following a judgment by Mtenga, J. in which the applicant was the successful plaintiff. The proceedings before the

learned Judge Kiongozi related to some money obtained on a garnishee order. In this application the applicant is represented by Mr. Kesaria and C Mr. Mchora, learned Advocates. The respondents' counsel is Mr. Tarimo.

In his Counter-Affidavit Mr. Tarimo took a preliminary point which he pursued in argument before us. He objected to the application being heard, on the ground that this D court has no powers to revise the learned Judge Kiongozi's decision in the absence of an appeal properly lodged in accordance with the Tanzania Court of Appeal Rule, 1979. It is Mr. Tarimo's contention that the powers of this court are derived from section 3 (1) of the Appellate Jurisdiction Act, 1979, which provides: E

> The Court of Appeal shall have jurisdiction to hear and determine appeals from the High court and from subordinate courts with extended jurisdiction.

He also referred us to Rule 36 of the Tanzania Court of Appeal Rules according to F which:

> The Court may, in dealing with any appeal so far as its jurisdiction permits, confirm, reverse, or vary the decision of the High Court, or remit the proceedings to the High Court with such G directions as may be appropriate, or to order a new trial, and to make any necessary incidental or consequential orders, including orders as to costs.

The thrust of Mr. Tarimo's argument is that neither of those provisions, nor Section 95 of H the Civil Procedure Code 1966, which furnishes the High Court with certain inherent powers, confers upon this court power to entertain the proposed application in the absence of an appeal. He says that as this Court is a creature of a statute, it can do no I more than what the creating statute empowers it to do.

He therefore urged this court to hold that the application is incompetent and should A accordingly be struck out.

Mr. Kesaria vigorously countered Mr. Tarimo's arguments. He submitted that we have powers to hear the application. He drew our attention to section 3 (2) of the Appellate Jurisdiction Act 1979, which says: B

> For all purposes incidental to the hearing and determination of any appeal in the exercise of the jurisdiction conferred upon it by this Act, the Court of Appeal shall, in addition to any other power, authority and jurisdiction conferred by this Act, have the power, authority and jurisdiction C vested in the court from which the appeal is brought.

Mr. Kesaria argued from this that because under section 38 of the Civil Procedure Code, 1966, the court executing the decree, in this case the High Court, has powers to D determine "all questions arising between the parties to the suit... and relating to the execution, discharge or satisfaction of the decree", the learned Judge Kiongozi had powers to deal with the matter and so this court has powers to entertain the application by virtue of section 3 (2) of the Appellate Jurisdiction Act. He further says that the E learned Judge Kiongozi could review his own decision under Order XLII Rule 1, so this court can do the same.

Mr. Kesaria also sought to answer Mr. Tarimo's contention that there is no appeal before us: He submitted that there is, because under Rule 2 of the Court of Appeal Rules F "Appeal" includes

"an intended appeal" and there is, in the present matter, an intention to appeal, Notice of Intention having been given. The way we have understood the learned arguments, Mr. Kesaria appears to concede that there has to be an appeal, actual or intended. G

Assuming for the sake of argument that Mr. Kesaria is right that the application is properly before us because appeal includes "an intended appeal", the question we ask ourselves is, what manifestation of that intention to appeal is there in the present matter? On the day the learned Judge Kiongozi delivered his Ruling, Mr. Kesaria indicated that H he intended to appeal. He was told by the court to go right ahead and file the necessary papers. Going by the record, he has done nothing of the sort, to date. We suppose one may go further and argue that when Mr. Kesaria verbally indicated his wish to appeal, on 22/8/83, it was the respondent SEKULU, who was asked to pay into I court the alleged decretal amount. In

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view of certain allegations made subsequently by Mr. Tarimo, the court ordered, A apparently on 8/9/83, that another entity, AMAZON TRADING CO, should deposit the money, and there was no indication of any desire to appeal at that stage and the matter rested there. We have not been told, either, that leave to appeal was sought and obtained under section 4 (1) C of the Appellate Jurisdiction Act, in connection with the B learned Judge Kiongozi's ruling.

We respectfully agree with Mr. Kesaria that under section 3 (2) of the Appellate Jurisdiction Act this court has certain powers of the High Court but we are also firmly of the view that the situation envisaged therein necessarily presupposes the need to C determine an appeal. There is no such need in the present matter, because there is no such appeal, actual or intended, before us. Article 68 (A) (3) of the Constitution also spells out the function of the court of Appeal to her appeals.

Under Order XLII Rule, I the learned Judged Kiongozi could only be moved to review D his own decision if "new and important matter or evidence" comes to light in certain circumstances. Nothing of the sort is advanced here. We are also of the view that to seek to involve this court by virtue of Section 38 of the Civil Procedure Code would be E wrong because, in our opinion, Section 38 is completely irrelevant for the purpose of the issue before us.

For the foregoing reasons we sustain the objection by Mr. Tarimo. We are satisfied that there is no appeal before us. The application is therefore incompetent and is accordingly F struck out with costs.

Application struck out.

1983 TLR p50

G

[zRPz]JUMA IBRAHIM MTALE v K.G. KARMALI 1983 TLR 50 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Makame JJA and Kisanga JJA

2 November 1983

CIVIL APPEAL 11 OF 1983

Flynote

Civil Practice and Procedure - Appeal, Record of - Not containing a copy of the decree - Whether appeal competent - R. 89 (2) Court of Appeal Rules.

Civil Practice and Procedure - Appeal - Record not containing decree - Notice of Motion seeking extension of time to file a supplementary record - Whether notice an answer to objection regarding competency of appeal.

1983 TLR p51

NYALALI CJ

-Headnote

On the day of hearing of the appeal, the respondent raised a preliminary objection that the appeal was incompetent since the record of appeal did not contain a decree as required under r.89 (2) of the Court of Appeal Rules. An adjournment was granted to enable counsel for the appellant to prepare to answer the objection. On the day when hearing was to continue, counsel for the appellant filed a Notice of Motion seeking extension of time to file a supplementary record of appeal.

Held: (i) In the absence of a copy of the decree, the appeal was incompetent;

(ii) a Notice of Motion seeking an extension of time to file a supplementary record of appeal was not the proper way to answer an objection regarding the competency of the appeal.

Case Information

Order accordingly.

Case referred to:

1. Commissioner of Transport v A.G. of Uganda and Another [1959] E.A. 329
2. Haining and others [1971] E.A. 421

S.El - Maamry for the appellant

M.A. Lakha for the respondent

[zJDz]Judgment

Nyalali, C.J. read the following order of the court: When this appeal came on for hearing on 2/11/1983 Mr. Lakha, learned Advocate for the Respondent raised an objection to the effect that the appeal was incompetent as the record of appeal did not contain a decree as required under Rule 89 (2) of the Tanzania Court of Appeal Rules, 1979. As no notice of this preliminary objection had been given as required under Rule 100, we granted an adjournment to enable Mr. El. Maamry, Learned Advocate for the appellant to prepare himself to answer the objection.

When the adjourned hearing came on for continuation today, Mr. El-Maamry had filed a Notice of Motion seeking extension of time to file a supplementary record of appeal. He however conceded that the Notice of Motion is not an answer to the objection raised by Mr. Lakha regarding the competency of the appeal now before this Court. Furthermore, he concedes that unless this Court holds that the absence of the decree in the record of appeal is immaterial, the

1983 TLR p52

Court is bound to strike out the appeal leaving the appellant with the option to make A subsequent appropriate applications seeking to bring back to this court a proper appeal in the case.
Mr. Lakha in final submission asks this court to strike out the appeal and dismiss the Notice of Motion.
Having considered the submissions made on both sides, and the authorities cited, B including the case of Commissioner of Transport v A.G. of Uganda & Another [1959] E.A. 329 and Haining & others [1971 E.A. 421, we are satisfied that this appeal is incompetent and is hereby struck out and we further direct that the Notice of Motion now before us be dismissed with costs.
C Order accordingly.
1983 TLR p52
D
[zRPz]OMARI AHMED v REPUBLIC 1983 TLR 52 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mwakasendo JJA, Makame JJA, Kisanga JJA

October 20, 1983
CRIMINAL APPEAL 33 OF 1983 E
Flynote
Evidence - Experts - Evidence of expert photographer with occasional experience in examining engines and chassis of suspected numbers - Unsafe to base conviction on uncorroborated testimony of such expert. F
Evidence - Credibility - Trial court's finding as to credibility of witness usually binding on appeal court.
Evidence - Experts - Requirements.
-Headnote
The appellant was convicted of theft of a motor vehicle contrary to section 265 of the G Penal Code. On appeal, the conviction was challenged on the ground that the testimony of the expert who examined the engine and chassis of suspected numbers could not be relied on in this case since the basis of his expertise had not been established. Secondly, H it was argued that the first appellate court had improperly interfered with the trial court's finding as to credibility of witnesses. The court of appeal considered both points.
Held: (i) There must be some evidence connecting an accused with a theft other than the I testimony of an expert who is uncertain;
(ii) the trial court's finding as to credibility of witnesses is usually
1983 TLR p53
MWAKASENDO JA
binding on an appeal court unless there are circumstances on an appeal court on the A record which call for a reassessment of their credibility.

Case Information
Order accordingly.
No case referred to.
M.A. Lakha for the appellant.
E. Uronu for the respondent.
[zJDz]Judgment
Mwakasendo, J.A. read the following considered judgment of the court: The appellant, Omari Ahmed, was charged together with another person, one Andrew John, on a count of stealing motor vehicle contrary to section 265 of the Penal Code, or in the alternative, with receiving a stolen motor vehicle contrary to section 311 (1) of the Penal Code.
The present case is simple enough. The salient facts may be briefly stated as follows, Hemed Sefu, P.W.1., told the trial District Court that he was a driver of a motor vehicle, Peugeot 504, registration number TZ 45799 which he usually parked at night at a parking lot along Kigoma Street, in Dar es Salaam. He paid Shs 5/- to a nightwatchman to watch over the vehicle during the night. This arrangement was known and apparently approved by Sefu's employer, the owner of the vehicle, one Hemed Abdalla, P.W.3. On the night of 18th July, 1981 the motor vehicle registration number TZ 45799 was stolen. Hemed Abdalla reported the matter to the police. On 30th October, 1981, Hemed Abdalla saw a motor vehicle being driven along a road within the city of Dar es Salaam which he suspected to be his stolen motor vehicle. This vehicle was a Peugeot 504, registration number MZF 104, dark blue in colour. He reported his suspicions to the police who then had the suspected vehicle traced and impounded for further investigations. On closer inspection of the motor vehicle, registration number MZF 104, Hemed Abdalla was convinced that this vehicle was one and the same vehicle as his stolen motor vehicle, registration number TZ 45799. His reasons for this view were his discoveries that the back seat of MZF 104 was similar to the back seat of TZ 45799; that the petrol tank cover of MZF 104 had no spring, which was also true of the petrol tank cover of his stolen motor vehicle; that the end of the exhaust pipe on MZF 104 was welded, which was also the case with the end of the exhaust pipe on his stolen motor vehicle. Hemed Abdalla's suspicions and presumably, those of the Police, were confirmed by a further

discovery that the chassis number of MZF 104 appeared to have been rubbed off and superimposed with a new number. Following this discovery the Police investigating officers called in inspector Stanley Elisente, P.W.5, to help in establishing the true chassis number of MZF 104. Stanley in this evidence before the District trial Court told the Court how he went about his task of establishing the true chassis number of MZF 104. He said:

I am working with I.B. Head Office. I have been a police officer for the last 20 years. 15 years with I.B. My work is to check engines and chassis and all other suspected numbers. On 23/3/82 I was called by Police Msimbazi. I went there to investigate chassis and engine numbers of motor vehicle MZF 104 which are in dispute. I was shown it by W.P. Kamade. I made my observations. I took photostat "A". I opened the bonnet where chassis numbers are marked. I

took a photograph marked "B". I took a photograph showing original numbers. When I removed dust there were numbers 1082235 which were discovered to be marked which were for MZF 104. I started to investigate by applying powder. I discovered numbers E 23...90. There was a gap which indicated that some other numbers might be in between. Therefore 1082235 were false numbers and numbers 23...90 were the correct number of the vehicle. From the registration card chassis number 2346990, I believe the numbers to be of F the vehicle Peugeot 504, TZ 45799. I have formed the opinion that they were for motor vehicle Peugeot 504, chassis number is 2346990... I hereby tender my report as exhibit I made regarding the disputed number...

In answer to questions put to him by the advocate for Omari Ahmed, Stanley is G recorded as saying.

I have been engaged in photography for 15 years. I painted them myself. I have done it all H alone. My work is to take photographs. I have attended a course and I have no certificate for this case. I have prepared only one copy ...I took a photograph on the left side alone. I did not take a photograph for the numbers on the engine. The numbers are only seen in one point alone. It is written 1082235. I

1983 TLR p55

MWAKASENDO JA

Before we leave this witness, we wish to refer to one more significant passage of his A evidence in cross-examination. It reads:

I was informed what the numbers were missing I could not read the middle numbers. Although I used acid some numbers are not visible. The acid is to show the numbers (to clean B it). I do not know what method was used to rub out the original number. The correct number 23469990 from the registration. This is what I think. It may be another number not 2346990... I am working for the police. I have checked the number and registration card that is why I have discovered. C

There are many other witnesses for the prosecution but we do not think for the purpose of this appeal we need to refer to the evidence of any other witness for the prosecution, except prosecution witness number 10 of whom we say more later. Now then, at the D end of the case for the prosecution the trial District Court found, correctly in our view, that no case had been made out against Andrew John. He was accordingly acquitted.

In his defence Omari Ahmed denied the charge and called two witnesses in support of his case; after which the learned trial Magistrate carefully analyses the evidence E presented before him and reached the considered view that the prosecution had failed to prove its case beyond reasonable doubt and, therefore, acquitted Omari Ahmed of the offence charged. The Republic being aggrieved by this finding appealed to the High Court which after a reappraisal of the evidence on record set aside the acquittal of F Omari Ahmed and substituted therefore a conviction for stealing and a sentence of two years' imprisonment.

Before this court the appellant and the Republic were represented by Messrs Lakha, G learned advocate, and Uronu, learned State Attorney, respectively.

Mr. Lakha has attacked the finding of the first appellate Judge on many grounds, some minor and others substantial. We will consider here only those grounds which relate to the evidence of P.W.5 and P.W. 10, two witnesses on whom the learned High Court H judge appears to have heavily relied in dealing with the first appeal. The learned first appellate judge's approach to the task before him, that is, the re-appraisal of the evidence on record, appears to have been determined by a pre-judgment that the learned trial magistrate dealt with the case in an unfair and uneven-handed manner. He I makes this point in these words:

1983 TLR p56

MWAKASENDO JA

I must point outright that the learned trial Magistrate did not form a balanced view of the A evidence in support of the charge and indeed he misdirected himself by disregarding the evidence for the prosecution.

We will now examine his re-appraisal of the evidence to see if his opinion of the trial B magistrate's finding in the case is borne out by the evidence on record. We begin by considering the evidence of Abdalla Nasoro, P.W. 10. The learned first appellate judge's analysis of this witness's evidence is quite short and reads as follows: C

More and above, there is the evidence of P.W. 10 who asserted that he bought a body of a car from the respondent and it is alleged to be a body of a car which the second accused bought from P.W.6 and P.W.7.. This evidence gives support to the case for the prosecution and I do D not find any reason as to why the learned trial magistrate disregarded it.

With respect, we think the reason why the trial magistrate disregarded the evidence of P.W. 10 is obvious enough and we are surprised that the learned Judge could not see E this from reading the witness's evidence at the trial, particularly his evidence in cross-examination. We think it is plain from reading the record that Abdalla Nasoro was a most unsatisfactory and unreliable witness. This is the witness who admitted in Court to F being told by the Police to tell lies: "I paid him Shs 40,000/= I was told by the Police to say second accused received Shs. 30,000/= I was told to say a lie by Police" P.W. 10 being that kind of witness, we cannot see how any reasonable tribunal could accept him as a witness of truth. We are satisfied that the learned trial magistrate acted properly G in disregarding this particular witness's evidence. We thus agree with Mr. Lakha that the learned High Court Judge erred in taking P.W. 10's evidence in consideration of the appeal against the appellant.

Next, we turn to consider the learned first appellate judge's analysis of the evidence of Stanley Elisente, P.W. 5. The learned first appellate judge quite correctly considered this H witness to be an important one for the prosecution. The prosecution, as it seems clear to us, put forward Stanley Elisente as an expert, who by his experience in the Identification Bureau had acquired special knowledge in photography and apparently, in the identification of disputed chassis and engine numbers of motor vehicles. However, I since his knowledge in photography was not needed in this case, it appears that the only

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MWAKASENDO JA

reason he was called to testify for the prosecution was because of his experience in A "checking engine and chassis and all other disputed numbers". We have seen from an earlier outline of Stanley Elisente's evidence that his claim to be an expert on the subject matter before the court is founded on his 15 years' experience with the identification Bureau as a photographer and an occasional examiner of engines' and chassis' B "suspected numbers". It will be recalled that Elisente readily admitted in his evidence that he was told by others what the alleged "rubbed off" or "missing" numbers were. He also readily confessed that what he thought was the "rubbed off" number could be another number and not necessarily number 2346990. The learned trial Magistrate who thought C that Elisente's evidence on this subject matter was no more than a mere guess, appears to have been reassured in this view when he visited the locus in quo and saw with his own eyes that the engine number of MZF 104 which Elisente never bothered to examine was intact. In these circumstances the learned trial Magistrate found no difficulty D in rejecting Elisente's evidence and acquitting the appellant. But as we have already said the learned first appellate judge reached a different conclusion from that of the Magistrate. We will now examine his reasons for doing so. E

The learned judge after accepting Elisente as an expert in identifying disputed engine and chassis number of motor vehicles recapitulated Elisente's evidence-in -chief and then said:

It should here be noted that the chassis number of the motor vehicle of the complainant which F was stolen is 23469990 as shown on the registration card Ex. "A". Thus these two figures that's 23 and 90 correspond with the first and last two figures of the chassis numbers of the stolen motor vehicle. This then gives support to the prosecution evidence that the chassis of G the disputed car must be that of the stolen motor vehicle and not that of car MZF 104 as Mr. Lakha the learned counsel for the second accused wanted this court to believe because the chassis numbers of the car MZF 104 which the second accused bought from P.W. 6 and P.W. 7 is number 1082235 thus the first two numbers for this car are 10 and the last two are 35. H The learned trial magistrate disregarded this part of evidence of P.W. 5 stating in his judgment as I tried to demonstrate above in that he himself had gone to view the scene where the disputed motor vehicle was kept and he found out that the engine numbers of the motor I vehicle was not interfered with

and thus the engine belongs to car number MZF 104 which is that of the second accused. The A record of the proceedings does not say that the Court ever went to view the "locus in quo" though several requests to this effect were made by the Public prosecutor. B

We would like to make two observations on the above comments of the learned first appellate judge. First, in view of our appreciation of the evidence given by Elisente at the trial we find it hard to accept him as a person with any specialised knowledge in the field C of identification of disputed engine and chassis numbers. Contrary to what the learned first appellate judge says about Elisente's working experience, it is clear to us that Elisente's experience for the last fifteen years was mostly in the field of photography. The witness himself confirmed this to be so when he said. "I have been engaged in D photograph for 15 years". We can see nothing on record to

qualify him as an expert in the "identification of disputed engine and chassis numbers of motor vehicles which are alleged to have been stolen". Therefore, it seems clear to us that the learned trial magistrate was right in treating Elisente's evidence as no more than a mere guess. This E view appears to find some support in Elisente's evidence in cross examination when he said "I was informed what numbers were missing I could not read the middle numbers", and again this "This is what I think. It may be another number not 23469990".

Our second observation relates to the court's visit to Ilala to view the motor vehicle F MZF 104. Although the learned first appellate judge doubts the claim by the learned trial Magistrate that the court visited Ilala to see MZF 104 and Msimbazi to view the body of the "disputed vehicle", we think the evidence fully supports the learned trial Magistrate's G claim. His claim is borne out by the evidence of Selemani Abdalah, P.W. 4 who said on cross-examination "I was present at Msimbazi the court moved there". There is also a reference of the court's visit to Ilala and Msimbazi in the evidence of P.W.6 and in the final submission by the advocate for the second accused. Referring to this visit the H advocate is recorded as saying: "The court visited the vehicle and checked the vehicle. The engine numbers were not interfered with". This statement by counsel is echoed by the learned trial magistrate in his judgment thus: "The court visited the vehicle and checked the vehicle, the engine numbers were not interfered with". To conclude this I aspect of the case we have no doubt that the court, that is, the magistrate and the prosecutor, counsel for the

accused, the accused, and witnesses, visited the scene where the motor vehicle MZF A 104 was parked for the purpose of seeing the vehicle and examining it. We cannot see anything wrong with that. Indeed, we think the visit was a must in view of the admission by Elisente that he had not examined the engine number of MZF 104. All in all, we are unable to agree with the learned first appellate judge that the learned trial magistrate B erred in not accepting the doubtful evidence of P.W.5 and P.W. 10. We are therefore satisfied that the learned first appellate judge was wrong in convicting the accused on the evidence on record.

For these reasons, we quash the conviction of the appellant by the High Court, and set C aside the sentence imposed on him. He is to be discharged from prison forthwith unless he is incarcerated therein for some other lawful cause. We order accordingly.

D Order accordingly.

E

[zRPz]ASHA MOHAMED v ZAINAB MOHAMED 1983 TLR 59 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Mwakasendo JJA, Makame JJA and Kisanga JJA

October 20, 1983 F

(PC) CIVIL APPEAL 13 OF 1983

Flynote

Civil Practice and Procedure - Jurisdiction of Primary Courts in cases involving title or interest to land registered under the Land Registration Ordinance, Cap. 334 - Section 14 of the Magistrates' Courts Act, Cap. 537.

Land Law - Compensation in respect of contribution made to property. G

-Headnote

The appellant sued respondent for half of the value of a house which she had jointly built with respondent's deceased father. The appellant was sister to the deceased, while the H respondent was daughter to the deceased. It was established in evidence that appellant had made financial contributions towards the construction of the house. The house, the subject matter of the dispute, was on land registered under the Land Registration Ordinance Cap. 334.

Two issues were considered by the appellate court: first, whether a primary court has I jurisdiction to entertain suits arising

1983 TLR p60

from immovable property on land held under the Land Registration Ordinance, Cap. A 334; and secondly, whether the appellant was entitled to any compensation in respect of the contribution she made to the property.

Held: (i) A Primary Court has no jurisdiction to entertain proceedings relating to B immovable property on a piece of land held on a government lease or right of occupancy;

(ii) a person is entitled to compensation for contribution made to any property.

Case Information

Order accordingly. C

No case referred to.

S. El-Maamry and Lubulila for the appellant. D

[zJDz]Judgment

Makame, J.A. read the following considered judgment of the court: In the Primary Court of Temeke the present appellant Asha Mohamed sued the respondent Zainabu E Rashidi, her niece, for half the value of the house she said she had jointly built with her deceased brother, the respondent's father, and which the respondent wanted to treat as being entirely part of her father's estate. The appellant succeeded in the trial court and the decision was affirmed by the District Court of Temeke on appeal. The present F respondent was still aggrieved so she appealed, further, to the High Court where she eventually succeeded. In the course of his judgment the learned Judge Kiongozi observed:

The issue in this case was not one of a debt of money owing from the appellant to the defendant as the lower courts seem to have thought. The issue before the court was who as G between the parties was the legal heir of the deceased`s property.

Mr. El-Maamry, learned advocate for the present appellant in the High Court obtained a H certificate to come up before us on the basis that the learned Judge Kiongozi misconceived the issue, the real dispute being whether or not the appellant had a share in the house in her own right as a partner. Before us Mr. Lubulira, learned counsel holding I the brief for Mr. El-

Maamry, conducted the appeal on behalf of the appellant, while the respondent was unrepresented.

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MAKAME JA

Briefly, Mr. Lubulira argued that the learned Judge Kiongozi proceeded on the wrong A basis and made a decision on the wrong issue, the appellant was not claiming a share of the deceased's estate, not in the particular suit giving rise to the present appeal. There was, further, the question as to whether the matter was in any event justiciable in the Primary Court in view of section 14 of the Magistrates' Courts Act. Cap. 537. Now the B said section 14 provides inter alia:

> ...No Primary Court shall have jurisdiction in any proceedings-(A) affecting the title to or any C interest in land registered under the Land Registration Ordinance..., Cap. 334.

The other question was as to whether section 57 of the Magistrates' Courts Act was applicable. The relevant portion of that section is to the effect that no civil proceedings D relating to immovable property on a piece of land held on a Government lease or right of occupancy granted under the Land Ordinance may be held in the Primary Court.

In reply the respondent merely reiterated that she had all along denied the existence of a E partnership in the house, between her deceased father and the appellant.

We propose to start with the question as to what the real issue was. With great respect, we are of the firm view that the learned Judge Kiongozi got it wrong. There had been earlier proceedings on who should inherit what portion of the deceased's estate. The F matter reached right up to the High Court where the learned Chief Justice pronounced all the proceedings below, null and void, and ordered a trial de novo. In the present proceedings there were passing references to the earlier Administration Clause but this was merely by way of providing a background: Inheritence never features as an issue G per se. The matter was contested on the basis of whether the present appellant had made some contribution to the construction of the house in dispute. We must take that as we find it. We agree with Mr. Lubulira, therefore, that the learned Judge Kiongozi did not base himself correctly. H

The other matter was the one regarding jurisdiction. So that the matter may not be tried in the Primary Court the title to or any interest in the land must have been registered under the Land Ordinance. What the respondent apparently produced before the high Court, incidentally at the eleventh hour, was merely an offer conditional upon the offeree I accepting it by paying the necessary

1983 TLR p62

MAKAME JA

fees, in this case Shs. 56/=. The fees had not been paid, therefore the offer had not been A accepted and there had not yet been registration by the time the suit was filed, sometime in November 1978. The respondent has conceded before us that payment was not made until March 1980. There may be proof that the plot had been surveyed B but there had been no registration under the Land Ordinance. It must follow therefore that the Primary Court had powers to try the suit.

We now come to the substantive issue: Whether or not the appellant had proved her assertion that she had built the house jointly with the respondent's father. The first two C courts below were satisfied that she had, while, as pointed out, the High Court did not at all consider the issue. The learned Judge Kiongozi remarked:

The respondent may have helped the deceased financially in constructing the house but that D fact does not necessarily support her claim in the lower courts that she is entitled to the inheritance of deceased property". (The emphasis is ours).

Going through the proceedings before the Primary Court, we are satisfied that there was E enough convincing evidence to justify the concurrent finding by the two courts below. The trial Court was clearly influenced by the evidence of Asha Musa, the respondent's aunt and apparently the appellant's half sister, and by the testimony of Zaina Omari, the F respondent's mother's co-wife, both of which supported the appellant's claim that she used to sell things to raise money to help in building the house. We do not think we have any good grounds to upset the concurrent findings of the first two courts. We accordingly allow the appeal, with costs, and affirm the decision that the appellant is entitled to 50% of the house. G

We wish to conclude by anticipating, and dispelling, a possible confusion. This appeal decides the question of partnership only. It does not concern the inheritance of the deceased's estate which consists of 50% of the house and any other inheritable property the deceased may have left. The respondent will have to apply for administration, afresh, H the earlier proceedings having been declared null and void, whereupon the appellant will probably claim a share therein as sister of the deceased. In that event it will be for the trial Court to determine whether or not the appellant would be entitled. No fresh fees I should be paid. We order the offer to be returned to the respondent.

Order accordingly.

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A

[zRPz]MAKUNGU KAHINDI v LUHUMBIKA NYANDA 1983 TLR 63 (HC)

Court High Court of Tanzania - Mwanza

Judge Chua J

(PC) CIVIL APPEAL 57 OF 1982

Flynote

Family Law - Dissolution of Marriage - Return of dowry from father in law - Whether B husband entitled to claim offspring of animals paid in bridewealth - S. 45 of the Law of Persons.

-Headnote

The appellant had divorced his wife with whom he had lived for four years. There was one issue to the marriage. He claimed for return of dowry, including offspring of the C animals, from the respondent, his father in law. The Primary Court Nyambiti awarded him 6 head of cattle. His appeal to the District Court was dismissed. Hence this appeal.

Held: (i) Under s.45 of the Law of Persons the offspring of the animals paid in bridewealth, whether cattle or goats, are not to be returned. Similarly, if the bridewealth has been paid in money no payment of interest can be claimed;

(ii) where no grounds of divorce were established then under s.52 (B) of the Law of Persons no bridewealth was returnable where there was an issue to the marriage.

Case Information

Appeal dismissed.

No case referred to.

[zJDz]Judgment

Chua, J. The appellant divorced his wife with whom he had lived for four years. There was one issue to the marriage. He claimed for return of dowry from the respondent, his father in law. The Primary Court Nyambiti awarded him 6 head of cattle. His appeal to the District Court was dismissed. Hence this appeal.

From the record of the Primary Court it appears that the appellant had divorced his wife on the grounds of desertion. It is unfortunate that the trial magistrate did not call for the divorce case file to ascertain the cause of the breakdown of the marriage. Nevertheless from what was deposed in court it was evident that the wife had absconded from the matrimonial home and could not be traced at her father's home. When she was finally discovered the appellant decided that he was no longer interested in continuing to live with her. It seemed therefore not factually correct to assert like

1983 TLR p64

the learned District Magistrate and Primary Court Magistrate did that the appellant had no reason to divorce his wife.

The appellant stated that he paid 17 head of cattle as dowry but he was now claiming 27 head of cattle because they had multiplied. But the law on this point is clearly laid down under s.45 of the Law of Persons which stipulates:

The offspring of the animals paid in bridewealth whether cattle or goats, are not to be returned. Similarly, if the bridewealth has been paid in money no payment of interest can be claimed.

Next to be considered is whether the Primary Court applied correct principles in assessing the number of cattle to be returned. The Primary Court took this to have been a case where no grounds of divorce existed but as I have stated above there was evidence of desertion which was not contradicted by the respondent. Had it been true that no grounds of divorce were established then under s.52 (B) of the Law of Persons no bridewealth was returnable since there was one issue to the marriage.

Taking into account the fact that the wife was guilty of desertion, that there was one issue to the marriage, that the parties had lived together for 4 years and that the wife has a chance of remarrying the award of 6 head of cattle in my view was fair and reasonable and therefore save as indicated hereinabove the appeal is dismissed. The appellant to be paid six (6) head of cattle consisting of five (5) cows and one (1) bull. The appellant to pay costs of this appeal.

Appeal dismissed.

1983 TLR p64
G
[zRPz]REPUBLIC v NDIMI MAGETA 1983 TLR 64 (HC)

Court High Court of Tanzania - Mwanza
Judge Korosso J

May 19, 1983 H
CRIMINAL REVISION 5 OF 1983
Flynote
Criminal Law - Impregnating a school girl - Contravention of the National Education Act, I 1978 - Meaning of school girl - Primary School Compulsory Enrolment and Attendance Rules, 1978.
1983 TLR p65
-Headnote
The record had been called to the High Court for the purpose of review of the order A made by the District Court of Magu convicting the accused of the offence of causing the girl not to attend primary education contrary to s.2 (4) of Act No. 25 of 1978 and Government Notice No. 129 of 1979. The main issue for consideration was whether the impregnated girl in the instant case was a girl within the meaning of the aforementioned legislation. B
Held: According to the record of trial court the impregnated school girl is said to be aged 17 and she is therefore beyond the prohibited ages which are between 7 and 13 years; under the circumstances the accused cannot be said to have committed any C offence known to law.
Case Information
Order accordingly.
No case referred to. D
[zJDz]Judgment
Korosso, J.: This record has been called to this court for the purpose of review of the order made by the lower court convicting the accused of the offence of causing a girl not to attend Primary education c/s 2 (4) of Act No. 25/78, Government Notice No. E 129/79. The accused was upon conviction sentenced to a fine of Shs. 1,000/= or 7 months' imprisonment in default.
The facts of the case are briefly as follows. The accused and the girl called Martha d/o Ludalula (P.W.2) both pupils of a certain Primary School became friends some time in F 1978. Their friendship apparently grew stronger and more intimate until they forgot all about their being pupils and resorted to sealing their friendship by sexual intercourse. The girl became impregnated by the accused. The girl having been pregnant was expelled. Her father P.W.1 reported to the police station. The accused was consequently arrested G and charged.
In the first place I would point out that the appellant was charged under a wrong section. Section 4 of the National Education Act No. 25/78 is only an empowering section under which the Minister for National Education may make regulations or rules for the better H carrying out

of the National Educational Policy. In the exercise of the powers vested on him under section 4(1) of the National Education Act No. 25/78, the Minister for Education made the Primary School Compulsory Enrolment and Attendance Rules 1979 published by Government Notice 129/79. Under rule 2 of the I

1983 TLR p66

KOROSSO J

aforesaid Rules, the word child is defined as any child who on the effective date has A attained the age of eleven but not attained the age of thirteen. Under Rule 4(2) of the aforesaid rule it is laid down thus:

Any person other than a parent who under any circumstances causes a child not to attend B school regularly until the completion of Primary Education shall be guilty of an offence and shall be liable on conviction to a fine not exceeding three thousand shillings or to both such fine and imprisonment (sic.) (ed).

It is obvious that the accused should, on the basis of the particulars of the charge, have C been charged under the provisions of Rule 4(2) of the Primary School (Compulsory Enrolment and attendance) Rules 1979.

The order question is whether the said Martha d/o Ludalula (P.W.2) was a girl as D defined under the provisions of Rule 2 of the aforesaid rules. The answer is an emphatic "No". According to the record of the trial court the said Martha d/o Ludalula is said to be aged 17 years. She is, therefore, far above and beyond the prohibited ages which are between 7 years and thirteen years. under the circumstances the accused cannot be said E to have committed any offence known to the law.

The result of this case is, however, very saddening because the Primary Education of the girl Martha d/o Ludalula has been interrupted and shortened. Apart from herself losing the vital education, the National Education policy that every Tanzanian youth should F receive at least a Primary School education is being defeated. This is all chiefly because the word 'girl' has been improperly or unsuitably defined to include only the girls aged between 7 years and 13 years. There is a real need to redefine the word 'girl' under Rule G 2 of the Rules so that it includes girls aged up to 16 years when it is reasonably hoped that by then every girl will under normal circumstances have completed her primary education. Alternatively, the word "girl" should be redefined so that it means any girl who has not completed a primary eduction. The redefinition of the word "girl" will be H brought into harmony with the wording of Rule 4 (1), (2) of the aforesaid rules, 1979 in which the phrase "completion of Primary Education", is deliberately made prominent. Leaving the definition of the word "girl" as it is, would definitely only serve to defeat and frustrate the national education policy popularly and formally referred to as Universal I Primary Education (U.P.E).

1983 TLR p67

With the above digression I conclude by saying that the proceedings were a nullity and A conviction illegal.

I quash the conviction, setting aside a sentence of Shs 1,000/= fine imposed on the accused. The said fine should be restored to the accused.

B Order accordingly.
1983 TLR p67
C
[zRPz]BILIMBASA ZACHARIA v JARVES JOHN 1983 TLR 67 (HC)

Court High Court of Tanzania - Mwanza
Judge Bahati J

October 25, 1983
(PC) CIVIL APPEAL 203 OF 1982
Flynote
Customary Law - Haya - Succession - Inheritance of land by female member of the family. D
Customary Law - Guardianship - Maintenance of minor by elder children of same family.
-Headnote
The appellant was an elder child of deceased entrusted with maintenance of his young E sister. Before his death, deceased distributed his land among his children, including female members. One of the daughters was a minor, whose guardianship fell on the appellant. Appellant failed to maintain the minor and even sold the land that the minor had inherited from their deceased father. On appeal the appellant argued that the minor F as a female member was not entitled to inherit the land.
Held: (i) No heir can take full possession of a plantation until the death of his wards: G
(ii) a sister may claim maintenance from her full brother whether he inherited property from their father or not.
Case Information
Order accordingly. H
No case referred to.
[zJDz]Judgment
Bahati, J.: This is an appeal by Bilimbasa Zacharia who was the defendant in the Primary Court. Jarves John, the respondent in this appeal appeared as next friend on I behalf of Theopista Zacharia who was the plaintiff in the Primary Court. In
1983 TLR p68
BAHATI J
the Primary Court Theopista Zacharia through her next friend Jarves John sued the A appellant Bilimbasa Zacharia claiming Shs. 4,000/= for a piece of land which she had inherited from her father Zacharia and which Bilimbasa had sold away. According to the evidence adduced, Zacharia now deceased was the father of Bilimbasa and Theopista and also one Paulina the elder sister of Theopista. Because Bilimbasa had quarrelled B with his father Zacharia and because Bilimbasa behaved like a knave or hooligan, guardianship of Theopista who was hardly a year old was entrusted to Paulina. Furthermore the deceased Zacharia apportioned his land to Bilimbasa and his two C sisters Theopista and Paulina. Each one of them inherited a portion of

their father's land. Then Bilimbasa sold the piece of land which Theopista had inherited to another person without the consent of either Theopista or Paulina, his two sisters. Moreover Bilimbasa who was supposed to provide the infant Theopista with necessities of life as her guardian D did not do so. This suit was brought to recover Shs. 4,000/= from Bilimbasa who had sold even the portion of land for use by Theopista.

In the Primary Court it was held that women cannot inherit clan land. The Primary Court Magistrate cited section 20 of the second schedule to the Government Notice No. 436 E of 1993 which states thus:

Women can inherit except for clan land which they may receive in usufruct but may not sell. F However if there is no male of that clan, a woman may inherit such land in full ownership.

The suit was then dismissed.

On appeal to the District Court, the learned District Magistrate referred to s.20 cited above. He however, held Theopista was entitled to inherit because that was the wish of G her father. He also held that the buyer of the shamba which was sold by Bilimbasa ought to have known that the shamba was in dispute and that it was not supposed to be sold. Thus the buyer bought the shamba at his own peril, concluded the learned District Magistrate. He then allowed the appeal of Theopista and ordered the buyer of the H shamba to vacate it forthwith and to claim any expenses incurred together with the purchase price from Bilimbasa. Against this decision Bilimbasa has appealed to this court.

In my evaluation of the evidence I do not think either the Primary Court or the District I Court arrived at a correct conclusion. The District Court brought in a foreign element in the case and that

is of bringing in the buyer of the land in dispute. The buyer of this land (whatever his A name is) was not a party to the suit nor was he made a party to the suit in any way. He therefore cannot be penalized unheard. Secondly, the claim in the Primary Court was for Shs.4,000/= because Bilimbasa had sold that piece of land which was for use by the infant Theopista. The claim is not for a shamba worth shs. 4,000/=. Therefore, the relief B which the District Court purported to give was not a relief which had been claimed. For these reasons, the decision of the District Court cannot be left to stand. It is hereby set aside. But that does not mean that Theopista has no relief. I do accept the law cited C above with regard to the right of women to inherit clan land (s.20 of 2nd schedule to G.N. 436 of 1963). But in this case even if Theopista did not inherit the land, certainly she had it for her own use. The appellant Bilimbasa sold this land thereby depriving her of her means of livelihood and this Bilimbasa who was supposed to be her guardian in D law was not providing her with anything for according to Cory and Hartnoll:

No heir can take full possession of a plantation until the death of his wards.

And paragraph 261 of Cory and Hartnoll provides: E

A sister may claim maintenance from her full brother whether he inherited property from their father or not.

In this case both paragraphs cited above are relevant. Bilimbasa being the only heir of his F father's plantation, is not permitted to take full possession of the plantation until the death of his wards namely Theopista and Paulina his sisters, for he is the guardian of these 2 sisters. In this case he not only sold his own land left to him for his use, he even sold the land meant for use by Theopista. It is clear that because Bilimbasa went against paragraph 261 of Cory and Hartnoll, she is entitled to claim maintenance from G Bilimbasa. In this case not only is Bilimbasa not maintaining Theopista, but he has sold even the land which would go towards the maintenance of Theopista. It follows from the above that the claim for Shs. 4,000/= is justifiable and should have been allowed. The claim of Shs 4,000/= from Bilimbasa, therefore, succeeds. The decision of the Primary H Court is reversed but for different reasons from those of the District Court. The decision of the District Court is therefore set aside and judgment is entered for the respondent Bilimbasa in the sum of Shs. 4,000/= with costs as claimed in the plaint. I

Order accordingly.

1983 TLR p70

A

[zRPz]TANZANIA BUILDING CONSTRUCTION CO. v TANZANIA RAILWAYS CORPORATION 1983 TLR 70 (HC)

Court High Court of Tanzania - Mwanza

Judge Munyera, J

November 2, 1983 B

CIVIL CASE 11 OF 1983

Flynote

Contract - Fundamental breach - Effect of fundamental breach on exemption clauses.

-Headnote

In a contract of carriage of goods between the plaintiffs and the defendants, the latter C were to carry the former's 400 corrugated iron sheets and 2 bags of roofing nails from Dar es Salaam to Mwanza. The goods were loaded into a railway wagon, fixed with heavy wires and sealed by the employees of the defendants in the presence of an employee of the plaintiffs. The contract was contained in a consignment note and carried D the term "loaded and counted by the sender and not checked by Railways". Only 40 corrugated iron sheets reached the plaintiffs at Mwanza, 360 corrugated iron sheets and the two bags of roofing nails having got lost. The plaintiffs sought compensation to cover the value of the lost goods and incidental expenses. The defendants relied on the E exemption clause to disclaim any liability at all.

Held: (i) It is a settled rule of law that an exclusionary clause aimed at absolving a party from obligations to a fundamental term of the contract would normally not be F enforced;

(ii) that the defendants would carry the goods from Dar es Salaam and deliver them to the plaintiffs in Mwanza was a fundamental term of the contract which they breached and as such they cannot invoke the exemption clause in their favour.

Case Information
Judgment for the plaintiffs. G
No case referred to.
Butambala, for the plaintiff H
Makunja, for the defendant
Editorial Note:
This case seems to have been decided on the doctrine of fundamental breach. See R.F. Mboya v Mewa Singh Mangat [1969] H.C.D. No. I
1983 TLR p71
MUNYERA J
1 citing Karsales (Harrow) Ltd. v Wallis [1956]2 All E.R. 866 at p. 868. A
In England the doctrine of fundamental breach is no longer in application. See Suisse Atlantique Societe D'Armement Maritime S.A. v N.V. Rotterdamsche Kolen Centrale [1967] I.AC. 362 and especially Photo Productions Ltd. v Securicor B Transport Ltd. [1980] 1 All E.R. 556 (H.L).
[zJDz]Judgment
Munyera, J. This suit arose out of a contract of carriage of goods. The plaintiff is a building firm known as Tanzania Building Construction Company based at Mwanza and C PW1 Sylvester Lubala and PW2 Ezekiel Mabula are the sole partners. The defendant is a well known common carrier in the country. The facts of the case are straight-forward. It is the plaintiff's case that last year they secured a contract to build army quarters near Mwanza airport for 602 battalion. In April same year 1982, when D construction reached wall plate stage, Lubala (PW1) was sent to Dar es Salaam to buy corrugated iron sheets for roofing purposes. He went and bought 400 sheets, gauge 28, from GALCO for shs 37365/40 and 2 bags of roofing nails from BHESCO for shs. 2240/30. He took the goods to the defendant yard where they entered into this contract. E The defendant agreed to transport the goods to Mwanza for a consideration of shs. 4650/= which PW1 paid in cash. The agreement was contained in the way bill otherwise known as Consignment Note. Pursuant to the agreement the defendant provided a wagon, CL 62722. According to the plaintiff, all 400 sheets and the 2 bags of nails were F loaded in the wagon which was closed, fixed with heavy wires and sealed by the defendant's employees and in the presence of PW1. Seeing that everything was in order PW1 departed for Mwanza to wait for the wagon. On 17/5/1982 the other partner, Mabula (PW2) was alerted of the wagon's arrival at the defendant's terminal, Mwanza G South Port. He hired a lorry and went to the port. The wagon was opened by the defendant's employee Timothy Mbalilaki (DW1). Only 40 sheets were found in the wagon. The rest (400-40) (360) sheets and the 2 bags of nails were missing. The loss was reported to Police Mwanza but they advised the plaintiff to go to Dar es Salaam. H There the police investigations achieved nothing. The plaintiff demanded compensation for their lost goods. The defendant declined. The plaintiffs sued. They were represented by Mr. Butambala, an Advocate based in Mwanza and the defendants were defended by their lawyer, Mr. Makunja. He argued that the defendants were not liable for the loss I if there was any at all. That it
1983 TLR p72
MUNYERA J

was a term of the contract that they should not check the goods Lubala (PW1) had put A in the wagon. Indirectly this means the defendants did not know whether the goods were loaded and as such they cannot be held liable for the loss of something they did not know of. By agreement four issues were framed.

I am now tackling the issues. I start with No. 1: whether the plaintiff had purchased the B goods said to have been lost.

Sylvester Lubala (PW1) narrated how he went to Dar es Salaam and how he bought the goods. He produced invoice No. 7739 dated 24/3/82 (Ex. PIA) stating that the plaintiff firm bought from GALCO, gauge 28 C.I. sheets of various sizes total 400. The price C was paid on receipt No. 5636 dated 30/4/82 (Ex. P1). He also produced a cash sale receipt No. 19633 (Ex.P2) showing he bought 2 bags of roofing nails from BHESCO. The defence did not dispute these documents. I am satisfied that they represent the transactions as recorded thereof and under s. 34C of the Evidence Act I accept them as D evidence of truth without requiring the authors to come to court. I find that the plaintiff had bought the goods. The issue is decided in the affirmative.

Now issue No. 2: Whether the goods were lost in the hands of the defendant. To resolve this issue I must decide whether the goods were in fact loaded in the defendant's E wagon. As I stated earlier the defendant's counsel argued that it was a term of the contract that they should not check the goods the plaintiff had loaded. As such they did not know whether the goods were loaded. He drew the attention of this court to a F rubber stamp endorsement on the top right hand corner of the consignment note which reads (block capitals).

"Loaded and counted by the sender and not checked by Railways".

Lubala (PW1) said he was not aware of the endorsement till it was brought to his G attention at the onset of this suit. He asserted the goods were actually loaded in wagon CL 62722 under supervision and help of the defendant's employees. I am inclined to accept Lubala's evidence. It has been undisputed that the plaintiffs were building army H quarters here in Mwanza. The goods were required to finish the buildings. It would be unreasonable to think that after buying the goods the plaintiff dumped them in the sea, then went to the defendants to pay for a wagon, put nothing in it and come to start a fake case. I do not see what they expect to gain by so doing. The railways man who closed I and sealed the wagon would, as a reasonable person, have been struck to find that he was sealing an

empty wagon while the consignment note recorded 400 sheets. From the foregoing A reasons I find that the goods were duly loaded in wagon 62722. Having reached this conclusion I am wondering whether it serves the defendant any purpose to insist that they did not check the goods. The court is satisfied they were loaded. Now there was evidence and the defendant admitted, that when the wagon arrived at Mwanza only 40 B sheets were in it. The wagon arrived with its seals intact. Circumstantially some clever people had opened it, took out the sheets, reclosed it and fixed a new set of seals. This must have been done while the goods were still in transit. They were in the defendant's C care. I decide the second issue in the affirmative. The goods were lost in the defendant's hands.

I skip issue No. 3 for the moment and come to No. 4: whether the defendants are liable for the loss.

The defendant's liability for loss of goods is set forth in section 34 of the TRC Act no. 11/77 and exemptions thereof. None of the exemption (a) to (g) covers this situation. D Likewise the rubber stamp endorsement "not checked by the railways" is of no legal importance. It was designed to absolve the defendant of their obligations. It is settled rule of law that an exclusionary clause aimed at absolving a party from obligations to a fundamental term of the contract would normally not be enforced. In this case it was a E fundamental term of the contract that the defendant would carry the goods from Dar es Salaam and delivery them to the plaintiff at Mwanza. Nothing would displace this obligation. I want to sound an advice to the defendant corporation not to include on this "not checked by the railways" phrase. It has bad effect. It encourages dishonesty among F the corporation's workers. This case is a conspicuous example. I find that the defendants are liable for the loss of the plaintiff's goods. I finish with issue No. 3. whether the defendants are liable for the alleged incidental expenses claimed in para 9 of the plaint.....

Needless to say much, it is a rule that damages are awarded if they arise as direct result G of the breach.

Having held the defendant liable for the loss, I shall now proceed to consider the reliefs claimed. In para 12(a) the claim is for the value of 400 sheets and the 2 bags of nails, total shs. (37365/40 + 2240/30) 39,6057/70. It should be remembered that 40 sheets H were delivered to the plaintiff (PW2). The claim should have been restricted to those not recovered which amounted to (400 - 40) 360 sheets. By simple arithmetic, their value is shs. (37365/40 x 360 over 400) 33,628/85. Combined value of the sheets and the nails is shs. (33628/85 + 2240/30) 35,869/=. In para 12 (b) they claimed I

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shs. 4650/= freight charges they paid for the goods. This was the consideration by which A the defendants were bound to the contract. If it is refunded then there is no contract to be enforced. I disallow this item. In para 12 (c) they claimed incidental expenses they incurred when PW1 and PW2 went to Dar es Salaam to buy the goods (PW1) and to help Police investigations after the loss (PW2). Obviously the claim in relation to Lubala B (PW1) cannot be allowed. The expenses were not the direct result of the breach. Even if the goods had arrived safely he would still have incurred the expenses and nobody would have refunded him. The expenses in relation to Mabula (PW2) arose C because he was instructed by the Police to go to Dar es Salaam. Had the goods not been lost by the defendant he would not have gone to Dar es Salaam. The expenses were therefore incurred as a direct result of the breach. He produced two air tickets to and from Dar es Salaam shs. 980/= each, total shs. 1,960/=. He also produced hotel D receipts to the value of shs. 2,0010/=. In all the expenses amounted to shs. (1960 + 2010) 3,970/=. In the final event I give judgment for the plaintiff. The defendant to pay the value of the sheets and the nails and the incidental expenses incurred by Mabula (PW2). For the avoidance of doubts the total decree amount is shs (35,8869 + 3,970) E 39,839/=, plus interest at the usual rate of 9% p.a. from the date of judgment to finalisation. The plaintiff to have their costs to be taxed as usual.

F Judgment for the plaintiffs.
1983 TLR p74
G
[zRPz]OCHORA ONGIRA v REPUBLIC 1983 TLR 74 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwaikasu, J

February 17, 1983
CRIMINAL APPEAL 55 OF 1982
Flynote
Criminal Law - Wildlife Conservation Act 1974 - Hunting a larger number of specified H animals than that authorized by licence -Accused licenced to kill one buffalo and one wildebeast -Accused killed an extra wildebeast as substitute for the buffalo -Section 31(b) (ii) of the Wildlife Conservation Act 1974 - Whether lawful.
Criminal Law - Wildlife Conservation Act 1974 - Failure to record animal killed on a game I licence - Section 44(1) (b) (3) of the Wildlife Conservation Act 1974 - Consequences.
1983 TLR p75
MWAIKASU J
Criminal Practice and Procedure - Sentence - Forfeiture of firearm - Mandatory where used A in the commission of an offence under the Act-Section 78 (1) (b) (2) of the Wildlife Conservation Act 1974.
-Headnote
The appellant was convicted of six offences under the Wildlife Conservation Act 1974. B The appellant was authorised to kill one buffalo and one wildebeast. With an oral permission from a game scout, he killed an extra wildebeast as a substitute for the buffalo. He was charged and convicted on six counts and his firearm was forfeited to the government. He appealed against all orders. C
Held: (i) Under the Wildlife Conservation Act, 1974, no person is empowered to grant an oral permission to kill any game animal; therefore the killing of an extra wildebeast as a substitute for a buffalo on a purported oral permission by a game official was unlawful; D

(ii) a person authorised to kill a game animal must keep a record of animal killed before the animal is removed from the place where it falls or is killed;

(iii)where the offence is committed under the provisions of the Wildlife E Conservation Act 1974 forfeiture of the firearm involved in the commission of the offence is mandatory.
Case Information
Order accordingly.
No case referred to F
W.K. Butambala for the appellant
J.B. Tendwa for the respondent

[zJDz]Judgment

Mwaikasu, J.: The appellant, one Ochora s/o Ongira, stood jointly charged as the first G accused, before the lower court, with four other persons on six counts all under the Wildlife Conservation Act 1974, firsts with the offence of hunting game without a valid Game Licence c/ss 23 and 70 (1)(2) of the Act; second, with the offence of hunting a H larger number of specified animal than that authorised by the licence c/ss 31(b) (ii) and 70 (1)(2) of the Act; third, with the offence of hunting a game animal by using a prohibited weapon c/ss 54(1)(a)(iv), 70(1)(2), 78(1)(2) and 10 of the Act as amended by Act No. 21 of 1978; fourth, with the offence of failing to record animal killed on game I licence c/ss 44 (1)(b)(3)

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MWAIKASU J

A and 70(1) of the Act; fifth, with the offence of unlawful possession of Government trophy c/ss 67 (1)(2) and 70(2)(b) of the Act; and sixth, with offence of failing to report the possession of Government trophy c/ss 67(1)(2) and 70(2)(b) of the Act; and sixth, with the offence of failing to report the possession of Government trophy c/ss 65(1)(2)(3)(5) and 70(1)(2) of the Act.

B He together with the other accused persons pleaded not guilty to the charge. He was nevertheless found guilty on all the counts and sentenced accordingly. He now appeals against such conviction and sentence together with the lower court's order of forfeiture. C Mr Butambala advocate appeared for the appellant and the Republic was represented by Mr. Tendwa, a state attorney.

Only one witness was called for the prosecution. He is one Frederick Mwombeki, the officer in charge of Anti-poaching squad for the Lake Zone, with his office at Mwanza. D His testimony was to the effect that on 26th of December 1981, at about 9.00p.m. while on duty at Lukungu Game Post, he saw a m/v Land Rover station wagon, registration No. MZH 136 coming from the bush and entering the main road. On being stopped and searched there were found five persons including the appellant and the driver, and two carcasses of wildbeasts. On enquiry about the lawfulness of the killing E and possession of such animals it turned out that the appellant had a valid Game licence that was to expire on 29/12/81 and had also valid licences for the one rifle and muzzle-loading gun (gobore) he had. However, it turned out that whereas the appellant F had been licenced to kill one buffalo and one wild beast, he in fact violated the terms of his licence by killing one extra wild beast. Consequently there followed such stream of offences charged against all the five accused persons.

However, according to unchallenged evidence of the defence side, of which there was G nothing forthcoming from the appellant as he opted to remain silent, it appears that the hunting was done in the company of a Game scout, and it was the Game scout, who for failure to find a buffalo, authorized the appellant to kill an extra wildbeast, and did in fact, kill one of such animals.

H It is in the light of such evidence before the lower court that counsel for the appellant submitted and to a greater part, counsel for the Republic conceded save for the offence on the 4th count only, that the convictions on 1st, 2nd, 3rd, 5th and 6th counts should be squashed and the sentences together with forfeiture orders should be set aside. In I support of such

submission counsel for the appellant had a valide Game licence, the mere fact that he had killed an extra

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MWAIKASU J

animal contrary to what had been specified in his Game Licence could not constitute the A offence charged on the 1st count, that of hunting Game animal without a valid licence. This was bad in law, as in the case, as rightly pointed out by the counsel for the Republic the offence committed, if any, would have been contrary to s.31(b)(ii) of the Act. With that I totally agree. So conviction of the appellant on the 1st count cannot stand. B

As regards arguments in respect of the 2nd count, was the argument for the appellant, which was equally supported by counsel for the Republic though on different ground, that since it was in evidence that the killing of the extra animal had been authorized by the C Game Scout for failure to find a buffalo, the appellant could not be said to have contravened the law. And as if to add weight to such argument, counsel for the Republic contended that by way of interpretation of the Act as provided for under s.25(1)(3), taking the Game Scout as a Game officer, who under the Act is a Licensing D Authority, it could be said that the appellant was given a verbal permission after an oral application. Of course it is this court which can provide an authoritative interpretation of the law, and I must say, I respectfully differ from the view held by the two learned counsel. For the law is very clear. Neither does the law permit an oral application for a E licence nor does it empower an game officer, as a licensing authority, to grant a verbal permission to hunt and kill a game animal. Clearly, the interpretation put by the learned counsel for the Republic on s.25(1)(3) of the Wildlife Conservation Act 1974, can hardly, even remotely be approximated to the meaning of the section in question. If I F may quote the relevant subsection, they provide as follows:

25-(1) Game licences may be issued by a licensing officer upon an application made therefor in writing in the prescribed form; (emphasis mine) and upon payment by the applicant of the G prescribed fee.

-(2) No game licence shall be granted to an applicant who fails to satisfy the licensing officer-

(a) that he has attained the apparent age of eighteen year; H

(b) that he is in possession of a valid firearm intended to be used in hunting;

(c) in the case of licence for hunting of a specified animal, that he is a citizen of the United Republic or that he has been ordinarily resident in the United Republic for a period of I

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MWAIKASU J

A not less than twelve months immediately proceeding the date of the application;

(d) that he has a reasonable knowledge of the use of a fire-arm for the purpose of game hunting;

B (3) The licensing authority may require an applicant for a game licence to appear before him and answer any question or produce any document relevant to any of the matters referred to in subsections (2) and the fire-arm proposed to be used.

C Thus under subsection (1) above the application for a licence has to be in writing and in a prescribed form. And the licensing officer, who under s.2 of the Act includes a Game Officer, may grant such licence only upon payment by the applicant of the prescribed fee and upon being satisfied that the applicant has satisfied the conditions laid D down under subsection (2) of s.25, quoted above. The audience which a licensing officer may give to an applicant as provided for under subsection (3) of the said section is for the purpose of making an enquiry or interview in order to satisfy himself as to the conditions laid under the said subsection (2). It is not an authority for granting an oral E permission to kill any game animal. In the absence of any express or implied provision under the Act empowering a licensing officer, or Game Officer for that matter, the alleged permission by a Game Scout to kill the extra wildebeast cannot be accepted to waive the F requirements of the law. For no person be he an enforcement officer or not, has the power to break the law, unless expressly so empower by the law itself. So what transpired, and I am entitled to assume it to be true was and must, regrettably be, at the appellant's risk. The appellant was licensed to hunt and kill only one wildbest. He killed two. This was contrary to the terms of his licence and amounted to an offence under G s.31(b)(ii) of the Wildlife Conservation Act 1974. I have therefore no hesitation in sustaining the conviction on this count.

Coming to the offence on the 3rd count, it was argued that whereas the appellant had H two guns a rifle and the muzzle-loading gun (gobore), the prosecution failed to establish which of the two guns was used to kill the animal. In fact, it was in evidence that an empty case of a cartridge, which must have been used in the modern gun - the rifle - was also seen and produced in court as an exhibit; and the "Gobore" which is the subject of I the charge on this count, was found loaded with gun powder, thereby meaning by necessary implication that it was the rifle that had been used to shoot the

wildebeast. Under such circumstances, despite the burden of proof placed upon an A accused person under s.70 (1) of the Act, the prosecution had failed to reach even the minimum standard of proof in order to establish a prima facie case, so that the offence on that count, too had not been established. I too, have no reservation on this point. I entirely agree with counsel for the appellant. On this counsel for the Republic also fully B agreed. Accordingly conviction on this count cannot stand. It must be quashed.

Coming to the offence on the 4th count, on this the law is very clear and there is a general consensus that the offence was clearly committed. For it is the requirement of s.44(1)(b) of the Act that the recording of the animal killed had to be done before such C animal had been removed from the place where it fell or was killed. This the appellant failed to do. He therefore clearly committed the offence in question. That the killing was done at night and the appellant had no opportunity to make such entry, cannot be a D mitigating factor in any way. The conviction therefore on this count must be sustained.

As to the 5th count which was very much interrelated with the 2nd count, here too, it was the common stand by the two learned counsel that as submitted in respect of the 2nd count that

with the Game Scout's permission to kill the extra wildbeast the appellant E could not be said to have unlawfully killed such animal, ipso facto, could be accused of unlawful possession of government trophy in respect of such extra wildebeast. Such arguments having been rejected in respect of the 2nd count it follows, too, they are not valid in respect of this count. Accordingly the conviction on this count must be sustained. F

As to the offence on the 6th count, it was argued and I think rightly so and also conceded by the counsel for the Republic, that in the light of evidence that the hunting was done in company with a Game scout and that on their way to and from the hunting, G the appellant with his party, reported at the Game Post, where they must have been checked, such reporting the subject of the charge was simply not in issue. I totally agree with such argument. In consequence, the appellant's conviction on this count cannot stand.

The final issue which is equally of great importance to the appellant and the Republic H alike concerns forfeiture orders made by the trial court. It was submitted by counsel for the appellant and conceded to by the counsel for the Republic that in the light of submissions for the appellant, it was only fair and just that such orders should also be set aside. With due respect and much regret, I must say that even if this court had been I sufficiently persuaded by

the learned counsel to sustain the appellant's conviction on the 4th count only, it still A could not interfere with the forfeiture orders made by the lower court. This is so in the light of the provision under s.78(1) (b) (2), of the Act. And what does the section say? It provides as follows: B

78 - (1) Where any person is convicted of an offence under this Act, the court shall (emphasis mine) order forfeiture to the government of- (b) any weapon in the possession or under the control of the accused at the time when the offence was committed, whether or not there is any C evidence to show that such weapon was actually employed by the accused in the commission of the offence:

That, I think, clearly goes to dispel any doubt as to the mandatory nature of such D forfeiture order, that has to be, and was rightly, made by the lower court in respect of the weapons found with the appellant consequent upon the commission of the offence of which he was convicted. This court, therefore cannot disturb any of the order of forfeiture made by the lower court. They are mandatory. E

As to sentences, I note that the offence on the 2nd count attracts a minimum sentence of not less than six months of imprisonment but not exceeding three years. The sentence imposed by the lower court is nine months of imprisonment. However, mindful of the fact F that there was an unchallenged evidence that such excess animal killed was authorized by a Game Scout in substitution for one authorized buffalo that had not been found and in terms of the provisions of s. 79(3) of the said Act empowering this court to impose a sentence lower than the minimum prescribed under the Act, if the High Court, for any G special mitigating factor deems fit so to do, I consider that this is a fit case to exercise such power. Accordingly I reduce the sentence

imposed on the appellant to one of a fine of shs. 2,000/=; or imprisonment for three months in default thereof.

To summarize, the appeal is allowed in part in respect of offences on the 1st, 3rd and H 6th counts. Sentences imposed on the accused in respect of such counts are accordingly set aside. On the other hand, convictions on the 2nd, 4th and 5th counts are upheld. Sentence on the 2nd count is reduced to a fine of shs 2,000/= or imprisonment for three months in default thereof. Orders for the forfeiture of the various articles produced I before the lower court as exhibits A, B, C, G1, A2 and B2 are to stand.

1983 TLR p81

Although the other accused persons charged as 2nd and 3rd accuseds did not appeal I A take this opportunity to exercise my revisional powers. In this regard I am clearly of the opinion that the 2nd accused who was the driver of the vehicle that had been borrowed by the 1st accused was an innocent party who had been dragged in by virtue of his employment as the driver of the vehicle. He should not have been found guilty of B any of the offences charged. Accordingly, I acquit him of the offences charged on the six counts and should be released forthwith unless lawfully held for any other offence.

In the case of the 3rd accused person, having acquitted the 1st accused on the 1st, 3rd C and 6th counts, he too, cannot stand convicted of such offences. He is acquitted accordingly. As to sentence on 2nd count, this is also reduced to one of a fine of sh. 2000/= or three months' imprisonment in default thereof.

D Order accordingly.

1983 TLR p81

E

[zRPz]EMMANUEL s/o KAHAMA v REPUBLIC 1983 TLR 81 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwaikasu J

June 16, 1983

CRIMINAL APPEAL 6 OF 1983

Flynote

Criminal Law - Obtaining credit by false pretences - Appellant stayed in hotel and enjoyed F services in course of employer's duty - Appellant failed to pay the bills for the services rendered - Whether false pretence - Section 305 (13) of the Penal Code.

-Headnote

The appellant rented a room in a hotel while in the course of employer's duty and was given services by the hotel. The appellant failed to pay the bill when it was presented to G him. He was charged with obtaining credit by false pretences.

Held: (i) To constitute an offence of obtaining credit by false pretences there must be proof of some conduct on the part of the accused person whereby at the time of entering H into an

agreement for obtaining credit, he purported to represent, that he was personally, or some other person, able to meet the bills on demand, when he knew such representation was false.

Case Information

Appeal allowed. I

1983 TLR p82

MWAIKASU J

No case referred to. A

Ndolezi for the respondent

[zJDz]Judgment

Mwaikasu, J. The appellant, one Emmanuel Kahama, stood charged before the lower B court with the offence of obtaining credit by false pretences c/s 305 (1) of the Penal Code, the particulars being that, having rented Room No. 416 at the New Mwanza Hotel between the dates of 3rd and 7th April, 1981, he incurred a debt of shs. 7,817/40, by false pretences, in that he failed

to pay the aforementioned sum of money which was the total of his unpaid bills, the C property of the New Mwanza Hotel.

He pleaded not guilty to the charge, but upon his trial he was subsequently convicted of the offence charged and sentenced to three years of imprisonment. He was also ordered to pay compensation to the said New Mwanza Hotel in the sum of shs. 7,817/40 being D the total value of his bills remaining unpaid.

He then preferred this appeal against both such conviction, sentence and order of compensation of the lower court on the grounds contained in his memorandum of appeal most material of which may be summarized as follows: E

(i) That he denies to have obtained credit by false pretences;

(ii) that on the material days of the incident he was an employee of the SOGESCA LARNAI ESTERO, as compensation liaison officer; F

(iii) that he did not abscond from the New Mwanza Hotel but left it on his own through normal procedure;

(iv) that the prosecution failed to summon the Receptionist who provided him accommodation as well as the Receptionist who was on duty on the G day of his departure, the 7th of April, 1981;

(v) that the trial magistrate failed to take into account his evidence and that of his witnesses.

He further added, on the day the appeal was first heard that the PW.1 had reason to lie H because he had been threatened to have his salary deducted to cover the amount of such unpaid bills, which deductions were, in fact, also mentioned by the PW.1 in his evidence before the lower court.

This court sought the production of an admission card from the New Mwanza, which in I terms of PW.1's evidence the accused

1983 TLR p83

MWAIKASU J

had first to fill the necessary particulars, including the terms of payment, before he was A given a room, but according to the testimony of the additional witness one Binito Jeremiah, an acting Receptionist supervisor, the admission card filled by the appellant on 3rd April, 1981 was found missing.

The Republic, as represented by Mr. Ndolezi learned State Attorney, declined to B support the conviction on the grounds, inter alia:

(i) That the admission card which could show whether, the appellant had C signed it for Company himself was missing; and

(ii) that as long as the prosecution could not challenge the appellant's allegation that he had been in Mwanza Hotel in his official capacity and the bills had to be paid by the company, his employer, the benefit of D doubt must go to the appellant.

Having gone through the record of the lower court together with the appellant's memorandum of appeal and having heard the additional arguments of the appellant together with the arguments and submissions of the learned State Attorney I had no E hesitation in allowing this appeal but reserved my reasons for the same which I now do hereby give.

In the first place, from the face of it, reading its particulars, the charge itself is defective. As it reads, it would appear that the appellant's alleged false pretence in obtaining the F credit was evidenced by his failure to pay the bills for the services rendered to him by the hotel. If that was the case, as it clearly appeared to be, it was misconception. To disclose an offence under s.305(1) of the penal Code the charge must allege some G conduct on the part of the accused person whereby at the time of entering into an agreement for obtaining the credit alleged, he purported to represent that he was personally or some other person able to meet the bills on demand, when he knew that such representation was false. That, according to the PW.1's evidence, in case of the H appellant, ought to have been extracted from the hotel's admission card in which the appellant had to fill all such information.

Had the prosecution succeeded in adducing material evidence to establish the charge, such defect could, however, have been considered curable under section 346 of the I Criminal Procedure

Code, Cap. 20. But as will hereinafter appear, such is not the position in the instant case. A

As to the fact of the case, apparently, save for the aspect of the alleged false, pretence by the appellant, there is no dispute as regards the renting by the appellant at the New Mwanza Hotel between the material days and obtaining the goods and services B amounting to a total value of shs. 7,817/40 as presented in the bills all of which have been admitted by the appellant as genuine, as he did in fact, countersign them. On the other hand such amount has not yet been paid and it is the subject of the charge that stood against the appellant. C

The only issue is whether the appellant did obtain such credit by false pretence. And one obvious fact is that the burden to prove the same lay upon the prosecution and they had to do so beyond any reasonable doubt.

False pretence is defined under section 301 of the Penal Code as meaning: D

Any representation by words, writing or conduct of a matter of fact or of intention, which representation is false and the person making it knows to be false or does not believe it to be true. E

It is clear from such definition that to establish the charge against the appellant it was not enough to simply show that the appellant failed to meet the bills. It was rather, the duty F of the prosecution to establish beyond any reasonable doubt that at the time the appellant entered into an agreement with the hotel for the accommodation by filling in the admission card, he did represent that either himself or some other person, was able to meet the bills for the goods and services rendered, on demand, when, in fact, he knew G that such representation was false or did not believe it to be true.

Yet, according to the record of the proceedings before the lower court no evidence was adduced by the prosecution as to how the appellant did present himself at the time of his admission into the Hotel as regards the manner and person who was going to foot his H bills. In fact, as stated earlier, no admission card that had been filled by the appellant on the day he entered the hotel was ever produced in evidence nor, on being ordered by this court to be produced, was it to be found anywhere: regrettably it was said to be I missing. It is, therefore, impossible, without information obtained from such admission card, to

determine how the appellant did represent himself before the Hotel personnel, as to his A means of meeting his hotel bills. Thus in the light of appellant's allegation as adduced in his evidence, which was not substantially challenged by the prosecution, that in this admission card he had indicated that the bills were to be met by SOGESCA LANARI ESTERO, then his employer, as he had been at Mwanza on his official duties it cannot B be said that the appellant ever represented that he would personally meet such hotel bills, when he knew he was financially incapable of doing so.

In fact, considering the evidence of the appellant as corroborated by the DW.1 one C Sweetberth Kashanga Rugarabamu, together with PW. 1's answer when cross examined by the appellant, it became clear that when the appellant had left the hotel arrangements were made for the Hotel to send the bills of expenses incurred by the appellant during his stay at the Hotel on the material days. Such communication was made by telephone on 8th April, 1981. However, the hotel was slow to take action and had not done so by the D time appellant was dismissed from work on 22nd May, 1981, for alleged extravagance in imprest expenditure. It was then until the PW1 felt the pinch of deductions effected on his salary to cover such unpaid bills that on 21st June, 1980, the E PW1 presented a complaint to the PW4 at Mwanza police station, which subsequently led to the charge that stood against the appellant. Clearly that falls short of a false pretence by the appellant.

Let me point out at this juncture that the dates of the record of the lower court are really confusing for whereas the charge 23rd June, 1981 and in their testimony the PW1 and F PW2 referred to the dates in April, 1981, the receipts produced before the lower court in support of the charge and the evidence of the PW3, PW4 (the arresting Police Officer) together with that

of three defence witnesses make reference to the dates of April, 1980. Taking the receipts to be representing the correct dates, I would take the G dates of April, in 1980, as the correct one. It follows therefore that the incident in question look place between the 3rd and 7th April, 1980, and not as represented in the charge sheet.

With such state of evidence before the lower court, the appellant ought to have had the H benefit of doubt and entitled to an acquittal.

Perhaps some observation about certain passages of the judgment of the learned trial magistrate will help see where the scales of justice seem to have began to turn against the I appellant, through a misdirection on point of law. Regarding burden of proof.

1983 TLR p86

MWAIKASU J

The passage which conspicuously manifests the thinking of the learned trial magistrate A which must have influenced him in rejecting the defence case reads as follows:-

The accused person, however, tended to show during his defence that he was entitled to board and stay at the hotel and use all food and other facilities at the expense of his B employer (SOGESCA LANARI ESTERO) in his official capacity as compensation liaison officer. But he has failed to prove his allegation by either producing a supporting document or calling any of the responsible officers from his company to come to court and ascertain his arguments. (Emphasis supplied). C

Certainly, from such a statement the learned trial magistrate clearly misdirected himself as to the burden of proof in the case. He did, in effect, shift the burden from the prosecution on to the appellant.

This was wrong. For the charge standing against the appellant was one of obtaining credit by false pretences; though unfortunately this did not make out what such false D pretence had been. It was therefore, as rightly pointed out by Mr. Ndolezi, learned state attorney, the duty of the prosecution to call responsible officials of the appellant's former employer, the said Sogesca Lanari Estero that the appellant had no such entitlements. And this they failed to do. In fact it would not have been surprising were such company E officials to be called for the prosecution, to deny such appellant's allegations for by then the appellant had been dismissed from the company and the company would naturally not accept such financial burden for someone who had been dismissed from their employment.

It is clear, therefore, that in looking at the appellant's defence as he did the learned trial F magistrate misdirected himself in shifting the burden of proof from the prosecution to appellant when in law, it was, in the circumstances, upon the prosecution to prove the case against the appellant beyond all reasonable doubt. G

For the above reasons I allow the appeal and set aside both conviction and sentence of the lower court together with order for compensation.

H Appeal allowed.

1983 TLR p87

A

[zRPz]MATHAYO s/o TIBASALILA v REPUBLIC 1983 TLR 87 (HC)

Court High Court of Tanzania - Mwanza
Judge Katiti J

October 29, 1982
CRIMINAL APPEAL 86 OF 1982
Flynote
Criminal Law - Being in unlawful possession of "Moshi" - Requirement of proof - Moshi B Manufacture and Distillation Act 1966, and Written Laws (Miscellaneous Amendments) (No. 22) 1981.
-Headnote
The appellant was convicted of being in unlawful possession of "Moshi". An experienced expert established by smell that the substance which was in possession of appellant was C a spirit, commonly know as "moshi".
Held: (i) Moshi can be identified either by sight, smell, taste or appearance, D

(ii) once it is shown that a person is in possession of moshi, the burden shifts on the accused to show that the possession is lawful,
Case Information
Appeal dismissed.
No case referred to. E
[zJDz]Judgment
Katiti, J.: As the sun of 31/1/1982 was hurriedly giving place to the evening, PW1 Marco and PW3 Sita Maganga were undisputably on duty at Ngudu Pombe Shop. The F evidence by PW1 and PW3 was to the effect, that as an unusual assembly gathered near the National Housing quarters, and thereby provoked the curiosity of PW1 and PW3, the same witnesses went to the scene, only to see the appellant with a plastic container, which the appellant left behind a certain house, and took to his heels. PW1 G and PW3 seized the said container and anxiously looked for the appellant, whom they finally arrested at the pombe shop, and hence the prosecution on allegations of possession of Moshi unlawfully and the conviction, that the appellant is now challenging.
The factual experiences of PW1 and PW3, up to seizure of the container are obviously H not subject to contention in these proceedings. What is in dispute, and therefore calls for adjudication, is first, whether the appellant was in possession of the container and therefore the contents, and secondly whether, the contents were identified as the prescribed Moshi. The trial magistrate did answer the first question positively, after I rejecting the appellants' alibi, that,
1983 TLR p88
KATITI J
he was not at the scene. After considering the appellant's complaint on this aspect, I am A satisfied that not even a slight temptation to suspect the evidence on the same, has been imported in me. PW1 and PW3 knew the appellant before the event, and I cannot see how

mistaken identification could have arisen in such broad day light, nor did the B appellant allege malice as a possible motivating factor, driving the said witnesses to tell lies. I believe therefore as did the trial court, that, the appellant had been in possession of the container before its seizure.

The prosecution witnesses PW1 and PW3 did tell the court, that, the contents of the C container were nothing else, but moshi. Of course, of assistance was the appellant, who in his defence unflinchingly agreed, though denying possession that, the contents were Moshi in the following manner:

"I know that, there was pombe ya moshi, when it was opened at the police Station..." D

I certainly do not extract comfort, nor inspiration, from what the appellant said as that, was no substitute, for the burden, that lies on the prosecution to prove, the case beyond reasonable doubt. Thus, the contents must have been proved, or identified as moshi, beyond reasonable doubt. E

Did the prosecution achieve this? Before delving into this, we must first know what moshi under the relevant law, is. The moshi, whose unlicensed possession is criminalised, is no longer a laboratorial per centum by weight of absolute alcohol matter. The law on F this aspect, has emerged from the laboratory, and retreated to practical realities, that match the circumstances prevailing. Now the moshi whose unlicensed possession is criminalised, is any spirits - which by whatever names they are known, is distilled without licence under section 19 of the Moshi Manufacture and Distillation Act 1966, and this G includes spirits commonly known as "moshi, machozi ya simba, gongo and umeme" -see Written Laws (Miscellaneous Amendments) (No.22) Act 1981, amending section 2 of the Moshi Manufacture and Distillation Act 1966.

The prosecution had therefore to prove that, the contents that, the appellant was in H possession of was spirit commonly known as either moshi, machozi ya simba, gongo or umeme. Such a proof could be done by an officer or officers, who by virtue of their experiences, are qualified to identify the liquor, either by sight, smell, or even by taste, or appearance. And it is the wish to the relevant law, that once possession of moshi, or I moshi in its other equivalent names has been established, the burden of proving that such

possession was lawful, shifts to the accused - see section 36 of the same applicable A statute.

In this case PW1, did show how big his font of experience in moshi cases was, and did demonstrate how the smell of the same was, apart from other characteristics. I would accordingly buy his experience and accept that the contents were moshi, as above B defined. The appellant was therefore in possession of the same and as there is no evidence that he was licenced, the conviction was in my view inevitable. As the sentence was not excessive, I do not propose to interfere with the same. The appeal is dismissed.

C Appeal dismissed.

D

Court High Court of Tanzania - Mwanza
Judge Katiti J

October 29 1982
CRIMINAL APPEAL 116 OF 1982
Flynote
Criminal Practice and Procedure - Incapacity of accused to understand proceeding - Court E ordered detention at President's pleasure under s. 169(1) (a) of the Criminal Procedure Code, Cap.20 - Procedure not proper - What the trial court should do.
-Headnote
The appellant was charged with desertion of a child, contrary to section 166 of the Penal F Code. During the proceedings the trial magistrate found that the accused did not understand the proceedings. The nature of her incapacity was not established. The trial magistrate sentenced the accused to be detained during the President's pleasure under section 169(1) (a) of the Criminal Procedure Code. G
The sentence was challenged on appeal.
Held: (i) Where an accused cannot be made to understand the proceedings the procedure to be followed is for the court to make a finding to that effect and then send the accused for medical examination; H

(ii) where an accused has been certified sane but he/she does not understand the proceedings, the court shall proceed to hear the prosecution, and defence, and shall determine whether or not the evidence justifies a conviction; in case accused is I convicted he/she shall be sentenced to be detained during the President's pleasure.
1983 TLR p90
KATITI J
Case Information
Order accordingly. A
No case referred to.
[zJDz]Judgment
Katiti, J.: The early March, of 1981, witnessed PW3 Thomas Mushungembe happily B marrying Suzana d/o Charles, herein to be referred to as the appellant. She already had had a child born of her. The 26/3/1981 came, as PW1 Nkananga Shage, was busily engaged in her shamba, a child cry from the wilderness jerked her, and calling upon PW2 for assistance, they both anxiously went into the bush, only to find a child aged C about ten months naked, and abandoned. The child was rushed to the hospital for precautious care.
As the discovery spread like tropical fires, it was subsequently discovered that the appellant was the mother. The appellant did not venture to deny her mother-hood of the D child, but countered the allegations of child desertion in court by presenting a story, that one Easter Charles, had forcefully taken away the child, and that, she (appellant) had reported the affair to the cell leader, who promised to look into the matter. This Easter Charles, if unfictitious, was

never called by the prosecution, nor by the defence. E The culmination of the prosecution was the conviction of the appellant, and a sentence of detention, at the President's pleasure. She is now appealing against the conviction, and the resultant sentence or order.

As the trial magistrate was almost reaching his conclusion to convict the appellant, he, for F the first time committed to paper his diagnosis of the appellant. For the appreciation of what he had in mind, I shall hereunder reproduce what he said and I quote:

...So in short, the accused person though not insane but can be grouped among the G simpletons or morons. And for this reason, she cannot be made to understand the proceedings. She has failed right from the beginning to understand the proceedings as adduced by the prosecution, and adduced by her, due to her imbecility. As far as the case is H concerned, there had been strong evidence to justify a conviction, and so I convict the accused as charged.

(sgd) W. Ogola, I

District Magistrate

1983 TLR p91

KATITI J

And hurriedly following on heels, was the trial magistrate's sentence, that was worded in A the manner hereunder, and I quote for ease of reference:

SENTENCE:

The accused is one who cannot understand the proceedings. She is now sentenced under B section 169 (1) (a) of the Criminal Procedure Code Cap. 20, to be detained during the President's Pleasure.

It is with unmitigated anxiety that I should as of now, change direction from considering C the merits of the appeal generally, to first considering whether the procedure adopted by the trial magistrate to the destination reached was in the circumstances, an appropriate one. The trial magistrate assumed readiness, to apply section 169 (1) (a) of the Criminal Procedure Code Cap. 20, to order detention of the appellant during the D President's pleasure, after being satisfied, in his own view, by his own untrained diagnosis that the appellant, though not insane, was simpleton, a moron and imbecile. My worry that is here pervading is that, the trial magistrate took the unrestricted liberty to loosely use such words, which though in ordinary language have meanings connoting E degrees of inadequacy of capacity of mind, I know of no legal construction that has been attached to the same. I shall therefore, in this exercise keep as sage a distance as possible, from treating them as helpful in this case.

All the same, the trial magistrate was on the road to applying the provisions of section F 169 (1) (a) of the Criminal Procedure Code Cap. 20, as it lays down the procedure, where the accused cannot be made to understand the proceedings. For ease of reference, the same sub-section hereunder reads: G

169-(1) If the accused, though not insane, cannot be made to understand the proceedings:

(a) in case tried by a subordinate court, the court shall proceed to hear the evidence, and if at the close of the evidence for the prosecution and if the defence has been called upon, of any H evidence for the defence, the court is of opinion, that the evidence which it has heard would not justify a conviction, it shall acquit and discharge the accused, but if the court is of

opinion that the evidence which it has heard would justify a conviction, it shall sentence the accused to I be detained during the President's Pleasure.

1983 TLR p92

KATITI J

I beg to submit that the trial magistrate having observed the appellant, did obvious A develop qualms about the appellant's capacity to understand the proceedings. The magistrate was obviously not sure whether the appellant's mind was at safe distance from insanity, or whether she could not understand, or appeared not to understand because of some other medical or even linguistic problems. B

The trial magistrate in his own observation - a layman's observation - for the same magistrate is not known for medical or psychiatric qualifications ruled out insanity, but labelled the appellant a simpleton, a moron and imbecile and proceeded to apply the C provisions of section 169 (1) (a) of the Criminal Procedure Code, Cap. 20.1 make no intellectual pretensions about medicine, nor do I know if the words imbecile, simpleton, moron have medical meanings, and I consider it difficult for a layman, which the trial magistrate is, in that branch of learning to tell different forms of insanity and even D distinguish different colours of insanity from sub-normal intelligence or even from imbecility. A person who is deafmute or dumb may easily exhibit signs that a lay-man could easily mistake for those of insanity. Again, a person may suffer temporary insanity, or may even be on the brink of insanity. In view of such medical realities, it was risky for E the trial magistrate to venture his mind blind-folded into the profession that was foreign to him.

But all the same, if the circumstances facing the trial magistrate demanded the application of section 169 (1) (a) of the Criminal Procedure Code, Cap. 20, the right procedure had F to be followed. And hereunder I shall demonstrate the procedural steps that would have safely led him to the destination desired.

(a) In the first place, logically, the trial subordinate court, unless it is an obvious case of violent insanity, may not appreciate how the accused cannot be made to understand G the proceedings, unless the said proceedings have commenced. Thus where, the court initially suspects that the accused cannot understand the proceedings, the said court must proceed to see whether the said accused cannot be made to understand H the proceedings. For whether or not the accused cannot be made to understand the proceedings, it is in my view, a question of adequacy of communication to and from the accused, to the witnesses and the trial magistrate. This communication could be I through an interpreter or signs, if need be. Whether the communication

1983 TLR p93

KATITI J

is through an interpreter, or signs, the said communication must be such that it is A adequate enough to ensure that the accused understands the evidence, that is being adduced against him on one hand, and is able to adequately appreciate and take advantages of the defence rights explained to him on the other. If as a result of this type of communication the accused understands the proceedings, then the trial must B proceed in the normal manner.

(b) Where on the other hand, with the communication available, the accused cannot be made to understand the proceedings, the trial court must make a finding to that effect C - under section 169 (1) of the Criminal Procedure Code - i.e, that, the accused cannot be made to understand the proceedings.

(c) Where the accused cannot be made to understand the proceedings and finding to that effect has been made, then on heels, is the question whether or not he is not insane. D The accused should be sent for medical examination for determination, as to his sanity or otherwise.

(d) Where the accused has been certified sane, and as above already shown he/she cannot be made to understand the proceedings the subordinate court shall under E section 169(1) (a) of Criminal Procedure Code Cap. 20, - i.e proceed to hear the prosecution and defence if called upon of any evidence, and finally determine whether or not the evidence justify a conviction. In the event the accused is convicted, he/she F has to be sentenced to be detained during the President's pleasure. In the event of acquittal, the said accused has to be discharged.

As I had earlier indicated my worries, the record does not show the above procedural steps were followed. The question of sanity or insanity was summarily, but G unprofessionally dealt with. The record on the other hand, shows that, although the accused pleaded not guilty and defended herself on oath, she never cross-examined anybody throughout the trial. I think in the interest of justice the case be sent back for re-hearing, before a different magistrate of competent jurisdiction, who will take the H procedural steps hereinshown. I do not have to go through the merits, or demerits of the appeal, in view of the above conclusion.

I Order accordingly.

1983 TLR p94

A

[zRPz]LEONARD PIUS AND 2 OTHERS v REPUBLIC 1983 TLR 94 (HC)

Court High Court of Tanzania - Mbeya

Judge Samatta J

October 11,1982

CRIMINAL APPEAL 42 OF 1982 B

Flynote

Criminal Law - Resettlement of Offenders Act - Failure to comply with a resettlement order contrary to section 13 (1) of the Resettlement of Offenders Act 1969- Resettlement order not made by relevant minister - Accused left precincts of settlement centre without authority of officer in charge - Whether this amounted to failure to comply with resettlement order. C

-Headnote

The accused were not settlers in a settlement centre under the Resettlement of Offenders Act 1969. They left the premises of the settlement centre without permission from the officer-in-charge of the centre. They were charged and convicted of failure to comply D with a resettlement order under s.13(1) of the Resettlement of Offenders Act 1969.

Held: In order to constitute an offence of failing to comply with a resettlement order, it E must be established beyond reasonable doubt that the order had been made and was still in force at the material time.

Case Information

Appeal allowed. F

No case referred to.

A. Teemba for the respondent.

[zJDz]Judgment

Samatta, J.: The three appellants, Leonard Pius, Iddi Ally and Samwel Kubeja, were G convicted by the District Court of Mbeya district of failing to comply with a resettlement order, contrary to s.13(1) of the Resettlement of Offenders Act,1969, which hereinafter will be referred to as the Act, and each of them was sentenced to a term of six months' H imprisonment. Three years ago I allowed the appeals, quashed the convictions and set aside the sentences. I reserved my reasons for so doing, and now I proceed to give them.

The subsection under which the appellants were charged, namely, s.13(1) of the Act, is I couched in the following language:

1983 TLR p95

SAMATTA J

Any person who, without reasonable excuse, fails to comply with any of the terms of a A resettlement order, shall be guilty of an offence and shall be liable on conviction to imprisonment for a term not exceeding 12 months.

The particulars of the offence in the charge preferred against the appellants were as B follows:

Leonard s/o Pius, Iddi s/o Ally and Samwel s/o Kubeja are jointly and together charged [that] on 21st day of February 1981 at about 10.00 hrs at Songwe Area within the District and Region C of Mbeya, being settlers under Settlement (sic) of Offenders Act, without reasonable excuse did leave such precincts of the Settlement Centre without authority of the officer in-charge of the said Settlement Centre. D

In my view, to prove a charge under s.13(1) of the Act the prosecutor must establish beyond a reasonable doubt, inter alia, both that a resettlement order had been made (by the Minister responsible for home Affairs) in respect of the accused person and that the order was still in force at the material time. In the case now at the Bar neither the E original nor a copy of any such order was produced before the trial court. In view of the fact that the prosecutor failed to lay down any foundation for the introduction of the secondary evidence on the matter, any oral evidence given (on the point) was inadmissible in law. There was, therefore, no evidence in this case upon which the trial F court could legally base a finding that the appellants were persons in respect of whom a resettlement order had been made. According to s.10 of the Act, every resettlement order must specify the following:

(a) the name and address of the person in respect of whom it is made; G

(b) the reason for which the order is made;

(c) the resettlement centre at which such person is to report;

(d) the route by which the settler has to travel to the resettlement centre. H

(e) any other matter which may be prescribed.

It seemed to me to be elementary logic that, unless the resettlement order is produced as an exhibit or its contents are otherwise properly proved, the court will remain ignorant of its terms I

and cannot, therefore, hold that the settler concerned failed to comply with any of them. A No criminal offence is committed under s.13(1) of the Act if the non-compliance is that of a term other than that stated in a resettlement order.

The particulars of the offence stated in the charge which was laid at the appellant's door B give the distinct impression that the prosecutor was not sure whether he should charge the appellants under s.13(1) or 14(2) of the Act or under Regulation 17(1) (f) of the Resettlement of Offenders Regulations, 1969. S.14(2) of the Act reads as follows:

Any settler who absents himself from a resettlement centre without the written authority of the C officer-in-charge [of the Resettlement Centre] shall be guilty of an offence (the underscoring is supplied).

It was the case for the Republic that the appellants had escaped from the Songwe D Resettlement Centre. According to The Concise Oxford Dictionary, when used as a verb the word 'absent' means keep oneself away. Applying this meaning, it seemed incontrovertible to me that s.14(2) of the Act does not cover or deal with the act of E escaping from a resettlement centre. What, in my opinion, the subsection deals with is the omission on the part of a settler to return to a resettlement centre. Regulation 17(1)(f) of the Resettlement of Offenders Regulations, 1969, is in the following terms:

Any person who- F

(f) being a settler, leaves the precincts of the resettlement centre without the authority of the officer-in-charge shall be guilty of an offence and shall be liable on conviction to imprisonment for a term not exceeding six months.(The emphasis supplied.) G

To prove a charge under this provision it must be established, beyond a sane doubt, and among other things, that a resettlement order was in force against the accused at the material time. Since, as already pointed out, no admissible evidence was laid in the scales against the appellants to prove the existence of resettlement orders, I was of the H settled view that it would have been a waste of time to consider the possibility of this court varying the appellants' convictions to ones of leaving the precincts of a resettlement centre without the authority of the Officer-in-charge of the centre, contrary to Regulation I 17(1)(f).

During the hearing of the appeals the appellants raised the point that, since before they A were convicted by the lower court this court had declared, while determining their applications for orders of habeas corpus, that the restraints imposed on their personal liberties were more than authorised by law, they (the appellants) could not in law be convicted of failing to comply with a resettlement order. This is not an uninteresting B contention, but, in view of what I have endeavoured to state, I do not find it necessary to express any views on it.

For the reasons I have given, I allowed the appeals and ordered that unless they were otherwise lawfully detained in prison, the appellants be released therefrom forthwith. C

Appeal allowed.

1983 TLR p97

D

[zRPz]GRACE LUMENYELA v ELIZABETH RUTAKUPA 1983 TLR 97 (HC)

Court High Court of Tanzania - Tabora

Judge Chipeta J

May 3, 1983

(PC) CIVIL APPEAL 8 OF 1982. E

Flynote

Family Law-Refund of bridewealth after dissolution of marriage- Whether daughter can claim bridewealth from parents-Bridewealth as property of the parents. F

-Headnote

The parties to this appeal are daughter and mother, the appellant being the daughter of the respondent. The appellant had claimed, and lost, in the lower courts three issues of cow which had been paid to her parents as bridewealth in respect of her marriage. The original cow had subsequently been refunded to the former husband of the appellant G upon the dissolution of their marriage. The issue on appeal is whether the appellant is entitled to claim the bridewealth from her parents.

Held: The appellant had no right over the animals because, by custom, bridewealth is the H property of the parents of the daughter.

Case Information

Appeal dismissed.

No case referred to. I

1983 TLR p98

CHIPETA J

[zJDz]Judgment

Chipeta, J.: The parties to this appeal are daughter and mother, the appellant being the A daughter of the respondent.

The undisputed facts of the case which I find rather amusing, are that when the appellant married her husband, the said husband paid to the mother of the appellant one cow as customary bridewealth. That marriage was blessed with five children. Subsequently, the B marriage broke up. Meanwhile, the cow had reproduced several times.

After the break-up of the marriage, the appellant's husband claimed from the respondent his one cow which he had paid as bridewealth. The respondent duly refunded one cow, but remained with three, the issues of the original cow. C

Meanwhile, the appellant, who had custody of the five children of the marriage, went to live independently. She filed a suit against her mother claiming the three cows on the ground that they were her property as they were as a result of her bridewealth. D

As would be expected, the trial Primary Court dismissed the suit, and her appeal to the District Court was also dismissed. This, then, is her second appeal.

The two courts were unanimously of the view that the appellant had no right over the animals because, by custom, bridewealth is the property of the parents of the daughter. E Without further discussion, I fully agree with that reasoning.

If the appellant wants maintenance for her children, she is advised to sue her erstwhile husband for the same. She has no right to claim the bridewealth as her property. That F remains the property of her parents. They can only part with that property and give it or any part of it to the appellant on the basis of a moral and not legal obligation.

For these reasons, this appeal is dismissed with costs.

G Appeal dismissed.

1983 TLR p99

A

[zRPz]FREDRICK SELENGE AND ANOTHER v AGNES MASELE 1983 TLR 99 (HC)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Chipeta J

June 8, 1983

CIVIL APPLICATION 1 OF 19983

Flynote

Civil Practice and Procedure - Hearing on Preliminary points - Both parties absent- Suit B dismissed - Advocate for plaintiff appearing before another magistrate - Whether dismissal should be set aside - O.IX r.4 Civil Procedure Code.

Civil Practice and Procedure - Hearing on Preliminary points - Whether suit "called for C hearing" O.IX r.3 Civil Procedure Code.

-Headnote

In suit for the recovery of debt, a day was fixed for hearing preliminary points. When the D case was called out the clerk told the court that both parties were absent. The suit was dismissed for non-appearance of both parties under O.IX r.5.

In the affidavit in support of the application to set aside the dismissal, advocate for the plaintiff swore that he was within the court premises when the case was called but he E was appearing before another magistrate. The application was rejected.

Held: (i) Whenever possible suits should be determined on the merits;

(ii) "hearing" has reference to the hearing of the suit itself and not to the hearing of F preliminary matters and therefore O.IX r.3 was misapplied.

Case Information

Appeal allowed.
Case referred to:
Jehangir Emporium v Teema Garments [1970] H.C.D. n 841
R.M. Patel for the plaintiff
M.H.A. Kwikima for the defendant
[zJDz]Judgment
Chipeta, J.: On the 19th March, 1983, granted the application and set aside both orders of the trial court made on 14th February, 1983 and 10th March, 1983, and ordered that the suit be restored to the file and determined on the merits. I reserved my reasons for doing so, which I now give.
1983 TLR p100
CHIPETA J
The Background to this application is that on 14/2/83, this matter, which was suit for the recovery of a debt, came up before Massawe, Resident Magistrate, for hearing preliminary arguments. When the case was called out, the clerk told the learned trial magistrate that both parties were absent. Accordingly, the learned magistrate dismissed the suit for non-appearance of the parties under O.IX, r.4 of the Civil Procedure Code.
Mr. R.M. Patel, learned advocate, who was representing the plaintiff from the very beginning, then filed an application before the same court for an order to set aside the dismissal order. That application was supported by an affidavit which was to the effect that he had been within the court premises at the time the case was called out, and that at the time the suit was being dismissed, he was appearing before another magistrate (Mr. Luanda, Resident Magistrate) in a criminal matter. That application, however, was refused by Mr. Luanda, hence these proceedings.
During the hearing of these proceedings, Mr. Kwikima for the defendant, said that he had no objection to this application being granted.
To start with, I take the view that wherever possible suits should be determined on the merits. In the instant case, the learned counsel for the applicant had deposed on oath as to the circumstances which had prevailed at the time the suit was dismissed. There was no counter-affidavit to rebutt the facts contained in the learned counsel's affidavit. All things being equal, therefore, the lower court ought to have acted on the basis of those facts deposed to, unless they were, on the face of it, palpably false.
Secondly, I take the view, with respect, that the provisions of Rule 3 of Order IX of the Civil Procedure Code were, in any case, misapplied. As pointed out earlier, the suit was not coming for hearing on that day. The matter was simply for hearing arguments on a preliminary issue. To my mind, the word "hearing" must have reference to the hearing of the suit itself and not the hearing of preliminary matters to the main suit.
I find fortification in this point in the case of Jehangir Emporium v Teema Garments, [1970] H.C.D. n 841. In that case, an interlocutory proceeding involving the question whether a third party should be joined in the suit was fixed for hearing before a Senior Resident Magistrate. On that day, the applicant had another matter before a Judge in chambers. Following the well

known practice that the High Court takes precedence over I a lower court, the applicant attended the Judge in chambers. Meanwhile his case was
1983 TLR p101
called up in court before the Senior Resident Magistrate. Both parties were absent, and A so the court dismissed the entire suit for non-appearance of both parties. The application then referred the matter to the High Court for review. Commenting on the court's powers of dismissal under Rule 3 of Order 9, the court (Section, J). said: B

Order 9 rule 3 allows a court to dismiss the suit when neither party appears when the suit is called for hearing. This power is discretionary and that is why the legislature found it safe to use the word "may" rather than "shall". In the present situation there were a number of reasons which would have forced a cautious magistrate not to proceed under this order. In the C first place the hearing was not for a suit but for a third party proceedings...The application which was to be heard before the learned Senior Resident Magistrate was not a suit for the purpose of Order 9 rule 3. D

It was for these reasons that I set aside the orders of the court below and ordered that the suit be proceeded with for determination on the merits.

E Appeal allowed.
1983 TLR p101
F
[zRPz]XY (MINOR) v REPUBLIC 1983 TLR 101 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

October 5, 1983
CRIMINAL REVISION 13 OF 1983
Flynote
Criminal Law - Defilement of a girl under age of fourteen - Section 136 (1) of Penal Code - G Defilement committed by a young person - The law applicable - Children and Young Persons Ordinance.
Criminal Practice and Procedure - Compensation - Order made against a young person - Whether parent or guardian liable to pay the compensation. H
-Headnote
A young person was charged with and convicted of the offence of defilement of a girl under the age of fourteen years. He was sentenced to suffer eight strokes of the cane and ordered to pay Shs. 2000/= as compensation to the complainant. On appeal the I propriety of the compensation order against the young person himself was considered.
1983 TLR p102
Held: Where there is an order of compensation involving a young person, the order can A be made against the parent or guardian of the young person.

Case Information
Order accordingly.
No case referred to.
[zJDz]Judgment
Chipeta, J. The accused was sentenced to undergo eight strokes of the cane on conviction for the offence of defilement of a girl under the age of fourteen years c/s 136(1) of the Penal Code. The learned trial magistrate also ordered the accused to pay shs. 2,000/= as compensation to the complainant.
As the learned magistrate appreciated, the accused was aged 15 years. He was, therefore, a young person within the meaning of that expression in the Children and Young Persons Ordinance. The provisions of that Ordinance, therefore, applied.
Under section 21(1) of the Ordinance, a parent or guardian of a convicted child or young person may be ordered to pay fine, compensation or costs instead of such order being made as against the child or young person.
In my view, it is advisable that such orders should be made against parents or guardians instead of against the accused. I say so because a child or young person invariably does not have the means to raise the money, and so orders made against children or young persons are usually rendered worthless.
On those grounds, the order of the trial court for compensation is hereby varied so at to read that the compensation of shs. 2,000/= shall be paid by the parent or guardian of accused.
It is so ordered.
Order accordingly.
1983 TLR p103
[zRPz]JUMA B. KADALA v LAURENT MNKANDE 1983 TLR 103 (HC)

Court High Court of Tanzania - Tanga
Judge Sisya J

October 6, 1983
(PC) CIVIL APPEAL 6 OF 1982
Flynote
Civil Practice and Procedure - Parties to suit for recovery of land belonging to ujamaa village - Whether individual can sue - R. 15(1) Magistrates' Courts (Civil Procedure in Primary Courts) Rules G.N. 310 of 1964.
Civil Practice and Procedure - Parties to suits - Suit filed by wrong party - Effect of - Magistrates' Courts Act, Cap. 537 s.32(1).
Civil Practice and Procedure - Parties - Joinder of - Land sold - Whether the buyer should be joined as a necessary party defendant - Effect of non-joinder.

Civil Practice and procedure - Pleading -Time when cause of action arose - Whether necessary to plead. D

-Headnote

The appellant brought an action against the respondent in Soni Primary Court to recover a "shamba". The respondent had been granted the land by an ujamaa village (of which the appellant was Chairman), and had subsequently sold it to a third party who was not E made a party to the proceedings. The appellant lost both in the Primary Court and the District Court.

Held: (i) The suit was filed in the name of the wrong person, the proper claimant should have been the Ujamaa Village; F

(ii) the error is merely technical and did not occasion any failure of justice and therefore it is curable under s.32(1) of the Magistrates' Courts Act 1963;

(iii) in a suit for the recovery of land sold to a third party, the buyer should be G joined with the seller as a necessary party defendant; non-joinder will be fatal to the proceedings;

(iv) under r.15 (1) (d) of the Magistrates' Courts (Civil Procedure in Primary courts) Rules, the plaint or application must indicate the time when the facts on which the claim is based arose.

Case Information

Order accordingly. H

W.R. Mramba for the respondent.

[zJDz]Judgment

Sisya, J. I must concede this matter has caused me tremendous anxiety. The appellant, I Juma Kadala, brought

1983 TLR p104

SISYA J

an action against the respondent, Laurent Mnkande, in the Soni Primary Court of A Lushoto District. The pleadings are far from being precise. The trial court, however, understood the law suit to be for the recovery of a "shamba". It is perhaps necessary to quote the facts on which the claim is based and I am doing so from the plaint as presented. They read: B

Maelezo ya Madai - Nikiwa Mwenyekiti wa Kijiji cha Mbuzii, nakumbuka kunako miaka ya nyuma, mdaiwa alikaa Mbuzii akiwa ni Mwalimu, na kwamba kama kawaida akapewa nyumba ya kuishi na kisehemu cha kulima. Alikaa hapo na baadaye alipanda kahawa. Wakati C alipohamishwa huku nyuma tukastuka kumuona Omari Kuziwa akijenga sehemu hiyo bila ya idhini ya kijiji na tulipouliza tukajibiwa na huyo Omari Kuziwa kwamba amenunua sehemu hiyo kwa Mwalimu Laurence ndipo tukaamua kuja kumshtaki. D

It was the respondent who, ostensibly, was no longer in actual or physical occupation of the disputed piece of land at the time the plaint or application was presented who was sued. The person who was and, apparently, he still is in actual and/or physical occupation of the disputed piece of land, one Omari Kiziwa, was left out. He was not E made a party to the proceeding.

Not only that, the date or time when the facts on which the claim was based was not mentioned at all. This is true of the plaint as presented as well as the evidence which the appellant adduced

at the hearing of the suit in the Court of first instance. We are thus left F in the dark as to when the cause of action arose.

And not only that, it is clear from the outset that it was an Ujamaa Village registered under the name of Mbuzii (or is it Mbuzili?) which was the actual plaintiff in the case. It seems even the trial Primary Court understood it as such because in the opening G sentence of its judgment it had this to say and I quote:

Katika shauri hili mdaiwa Lawrence Mnkande amedaiwa shamba na Kijiji cha Mbuzili alililoliuza. H

This Court was informed by the appellant, Juma Kadala, at the hearing of this appeal that the said Mbuzii village, of which he is currently chairman, is registered under the law, presumably, the Villages and Ujamaa Villages (Registration, Destination and I Administration) Act. No. 21 of 1975, and that its registration number

is 140. Under the law Mbuzii village is, therefore, a legal person with power to sue and A to be sued. All this notwithstanding the appellant brought the action (or was he permitted to do so?) in his own personal name.

At the hearing of the appeal it was argued by learned counsel for the respondent, Mr. Mramba, that this appeal should be dismissed because the original suit was filed in the B wrong name, i.e. Juma Kadala.

The institution of proceedings in Primary Courts is governed by the Magistrates' Courts (Civil Procedure in Primary Courts) Rules, 1964, GN 310 of 1964. Rule 15(1) lays C down that a proceeding shall be instituted by an application specifying, inter alia, the name, occupation and place of residence or place of business of the claimant. By reason of this as well as by reason of the fact that the claimant in the case is Mbuzii Ujamaa Village the suit ought to have been brought or filed in the name of the claimant, namely D Mbuzii Ujamaa Village. The reasons behind this are not at all difficult to find. If need be and purely for purposes of demonstration, one of the most obvious ones is that although Juma Kadala is currently the village chairman (and we may all wish him to remain so for as long as he is alive) it is possible he may not be there or he may no longer be chairman E tomorrow. By due process of the law, in case of death, only the administrator of Juma Kadala's estate or his advocate or his duly authorised agent will have locus standi in cases filed in his name such as the present one. And chances are that such a person is most unlikely to be his successor in office of village chairman as well. Another reasons is F that any order and/or decree issued in the case must necessarily be in the name of Juma Kadala. Likewise execution of the same will have to be done in the same name. The difficulty or confusion that may ultimately emerge if the name remains unchanged are too obvious to need a restatement. In the long run it may even be almost impossible to G separate Kadala's personal property and that of the village. As a matter of fact an unscrupulous person can even easily fraudulently covert communal property to his own use thereby.

Admitted, as indeed it must be, that the suit should have been filed in the name of Mbuzii H village the question that I have to consider now is, what effect does this error have to these

proceedings? As I think I have sufficiently demonstrated the error here is merely technical and I am satisfied that the mere writing of the name Juma Kadala instead of Mbuzii Ujamaa Village did not occasion any failure I

1983 TLR p106

SISYA J

of justice. The error under query is thus curable under section 32(1) of the Magistrates' A Courts Act, Cap 537, and I so hold.

I now turn to the more difficult aspects of this appeal. First, the time factor in the case. I have, time and again, emphasized the importance of indicating in the plaint or application B the time when the facts on which the claim is based arose. This requirement is provided for in Rule 15(1) of the Civil Procedure in primary court rules, GN 310 of 1964. The basis of this requirement is that it is from the time shown or given that the Court can determine whether or not the suit is time barred. It must be the aim of every C Court of Law to ensure that there is an end to litigation. As aforesaid no time was shown or given in this case as to when the respondent allegedly abused the terms of his occupation of the piece of land in dispute. However, in view of what I propose to do in this instant matter I choose not to say anything more on this point. D

I now turn to the point which has caused me a lot of difficulty in this matter. Without beating about the bush this is the appellant's choice to sue the respondent whom he and all the witnesses who gave evidence on his side knew to be no longer in occupation of the disputed piece of land and leave out one Omari Kiziwa whom the appellant and his E witnesses also knew to be in actual occupation of the said piece of land after he had, ostensibly, bought it from the respondent. This present occupant of the disputed piece of land ought to have been sued jointly with the respondent for recovery of the piece of land in dispute. Failure to do so was fatal to the proceeding because on the facts of the F case, most of which do not appear to be disputed, it is impossible to make any orders in this matter without affecting the rights of Omari Kuziwa who has not had any chance of being heard in this matter at all. Every person must be heard on matters that concern and/or affect his rights. This is a fundamental principle of justice in any democratic G country such as ours and the same must be guarded, particularly by courts of law worth the title, with utmost jealousy.

In the event I direct that this matter will now be remitted back to Soni Primary Court with directions that Omari Kuziwa be joined as a party to the case and the subsequent H trial will proceed in the normal way and according to law.

For the avoidance of doubt it was intimated at the hearing of the appeal that the respondent has since died. It will thus have to be his appointed administrator who will be sued jointly with Omari Kuziwa. The plaint or application to be filed must show that I whoever will be the respondent's successor is being sued as the appointed

1983 TLR p107

administrator of the estate of Lawrence Mnkande, now deceased. The name of the A plaintiff will be Mbuzii Ujamaa Village and the date when the cause of action arose must invariably be shown.

In the final result this appeal succeeds to the extent indicated. In all other respects it is dismissed. Each party will, however, bear his own costs. B
Order accordingly.
1983 TLR p107
C
[zRPz]SALUM ATHUMANI v MWAMINI HAMISI 1983 TLR 107 (HC)

Court High Court Tanzania - Dar Es Salaam
Judge Bahati Ag J

September 23, 1982 D
(PC) MATRIMONIAL CIVIL APPEAL 5 OF 1980
Flynote
Family Law - Divorce - Marriage irreparably broken down - Cruelty - Beating of the wife and E failure to provide proper maintenance.
Family Law - Dowry - Whether refundable under Islamic Law.
-Headnote
This is an appeal by Salum Athumani who was the respondent in the lower court against the judgment and order of the Primary Court at Magole, Kilosa District. In the said F Primary Court the respondent in the present appeal brought a suit against the appellant for divorce because of, inter alia, cruelty. The lower court unanimously found that there was evidence that the marriage had broken down irreparably, and proceeded to grant the divorce. The court was also of the unanimous view that according to Muslim law G which governed the parties no dowry was returnable where the offending party was the husband. The appellant aggrieved by this judgment and especially the order that no dowry would be returned to him appealed to this court. H
Held: Under Muslim law dowry is not returnable after consummation of marriage and the position is even stronger where the husband has been found to be the guilty party.
Case Information
Appeal dismissed. I
1983 TLR p108
BAHATI Ag J
Case referred to: A
Hussein Mbwana v Amiri Chongwe, Digest of Appeals from Local Courts, 1963 Vol. X.
[zJDz]Judgment
Bahati, Ag. J.: This is an appeal by Salum Athumani who was the respondent in the B lower court against the judgment and order of the Primary Court at Magole Kilosa District. In the said Primary Court Mwamini Hamisi hereinafter called the respondent brought a suit against Salum Athumani hereinafter called the appellant claiming to be granted divorce because of, inter alia, cruelty. The respondent told the lower court that C the appellant used to beat her very much

and would not maintain her properly. The two had been to the Conciliation Board often and the appellant would not change his ways. The respondent called her father as a witness who said that he was aware of the unsatisfactory way the appellant and the respondent were living. He had witnessed the D respondent running away from her husband due to troubles she experienced with her husband. He also said that the appellant and respondent had been to the Conciliation Board and even to the courts often. At one time the appellant filed a suit against the E respondent for the return of his dowry but the matter was not pursued.

At the close of the respondent's case the appellant said this:

Mimi sitaapa lolote tena sitaeleza lolote natosheka na ushahidi wa mke wangu na wa baba yake.

In English the above is equivalent to this: F

I will not swear to anything nor will I say anything. I am satisfied with the evidence of my wife and her father.

The lower court unanimously found that there was evidence that the marriage had G broken down irreparably and proceeded to grant the divorce. The court was also of the unanimous view that according to Muslim Law which governed the parties no dowry was returnable where the offending party was the husband. The court therefore ordered H that no dowry would be returned.

The appellant aggrieved by this judgment and especially the order that no dowry would be returned to him appealed to this court. His memorandum of appeal is in the form of a letter giving the facts of the case in the lower court and even giving other facts not on I record in the casefile of the lower court. It is not really easy to

decipher what the appellant's argument is. In court the appellant argued that he had A originally filed a suit against the respondent in Mvomero Primary Court apparently to recover his dowry. Since the respondent could not repay the dowry or appeal against the decision ordering her to repay the dowry if she wanted to leave the appellant, the respondent had no alternative but to live with the appellant again. When the respondent B filed the present suit, the appellant told the Primary Court Magistrate that his matter had already been decided in Mvomero Primary Court Morogoro District. Since the Magistrate went on to hear the case all the same the appellant went to the District Magistrate Kilosa to complain and the District Magistrate wrote a letter saying that the matter was res judicata and that the Primary Court Magistrate did not follow these C instructions and he proceeded to grant divorce to the respondent without any evidence. It should be borne in mind here that this court is to be guided by the record of the Primary Court. It would appear from the record of the Primary Court that at the outset of the case in answer to the suit the appellant who was then the respondent said that he D disputed the claim of the respondent who was the petitioner in that case. The appellant went on to tell the Primary Court that the matter before the court had been decided at Mvomero Primary Court civil cases No. 26/79 and 22/79. The first case was in respect of a suit by the appellant for the compulsion of his wife to live with him. The second case E was for claim

of dowry but the court did not order return of dowry because the marriage was still subsisting. Following this statement by the appellant the Primary Court ordered the appellant to bring a copy of the judgment in each case from Mvomero Primary Court. The record goes on to show that the appellant told the court that he did F not want to bring any copy of judgment from the Mvomero Court. That is when the present case proceeded to hearing. I should pause here and say that if ever there were such suits before filed by the appellant in Mvomero court they would not affect this case. The case to compel cohabitation would be contrary to section 140 of the Law of G Marriage Act and the second case for the return of dowry would be premature because the marriage was still subsisting. The letter referred to by the appellant in his address to the court does not in any way instruct the Primary Court Magistrate at Magole to dismiss H this case. I need not say more than this here with regard to the letter from the District Magistrate Kilosa.

Having said that, what is the complaint of the appellant before this court? I see none. He did not cross-examine the witnesses nor did he adduce any evidence in defence. The Primary Court was I

satisfied, and in my view correctly so, that there was evidence that the marriage had A broken down irreparably and it granted the divorce. I am satisfied that there was evidence sufficient to justify the grant of divorce. It would appear however that the real thing the appellant is interested in is the return of his dowry. We shall therefore consider B whether he is entitled to return of his dowry in the circumstances of this case.

According to the Law of Persons as stated in the Government Notice No. 279 of 1963 there is no refund of bridewealth where the guilty party is the husband. But I should hasten to add that this is not the law applicable here. It is mentioned here simply to provide some comparison with the Islamic Law which is applicable in this case. Now, C according to Islamic law dowry is paid to the wife unlike bride-wealth in customary law which is paid to the father or other relatives of the wife. This is clearly stated by Sheikh Ali Hemed El Buhriy in his book Kitabu cha Nikahi under the heading "Mahari". The issue here is whether the appellant is entitled to the dowry he paid in consideration of the D marriage. First of all, it is not clear what the appellant paid. It is permissible under Islamic Law to pay the dowry to the wife and then bride-wealth to the relatives of the wife. In Hussein Mbwana v Amiri Chongwe reported in A Digest of Appeals from Local Courts 1963 Vol.X Spry, J. as he then was, had this to say on the subject of E bride-wealth in Islamic marriages:

In Islamic law the wife is absolutely entitled to the dowry as her own personal property. On the other hand, in African customary law the brideprice goes not to the woman but to members of her family. Islamic law does not recognize bride price, but on the other F hand I am not aware of any provision which expressly forbids it. I see no reason, therefore, why brideprice should not be paid under customary law at the time when an Islamic marriage takes place just as it frequently is on the celebration of an African Christian marriage.

Any question concerning brideprice, however, will be decided under customary law, G since the matter is outside the sphere of Islamic law.

As mentioned above, it is not in evidence nor is it clear what the appellant paid, whether what he paid was dowry to his wife or brideprice to her father. However, according to the proceedings in the Primary Court it would appear that court was considering dowry H and not brideprice. The two assessors and the Magistrate were in agreement that no dowry was refundable in circumstances like in this case. The lower court had accepted what the appellant had stated that he had paid shs. 820/= as dowry to his wife that is I why the court based its decision on Islamic law. I am in agreement with the decision

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of the lower court on this point. I have come to this conclusion in view of what is A contained in Sheikh Ali Hemedi El Buhriy's Kitabu cha Nikahi. Although in this booklet the learned author does not deal with a similar situation like this one, there are indications to the effect that dowry is not returnable when there has been a consummation of marriage. The learned author talks of dowry in circumstances where the husband has B either not paid it at all or has not paid it in full. Paragraphs 41 and 42 in this booklet mentioned above do indicate that dowry is not returnable after consummation of marriage. The position is even stronger here where the husband has been found to be the guilty party. This appeal is therefore dismissed with costs. C

Appeal dismissed.

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D

[zRPz]RAJABU HASSARA v SARAYA RASHID 1983 TLR 111 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Ruhumbika J

May 26, 1983

CIVIL APPEAL 21 OF 1981 E

Flynote

Land Law- Revocation of Right of Occupancy - "Good cause" - Whether notice to show cause necessary.

Land Law - Assessment/valuation of development on land - Compensation - Right to be F heard about the expenses incurred.

-Headnote

This appeal involves the disputed right of occupancy in respect of a plot codified as PLOT NO. 274 EX-DAYA ESTATE in Ilala District in the City of Dar es Salaam. The appellant was offered the right of Occupancy in respect of the said plot in 1968. The G Right of Occupancy was eventually revoked by the President for alleged non-compliance with the conditions stipulated in the Right of Occupancy in question. The crux of the appeal is whether or not there had been "good cause" for the revocation of H the Right of Occupancy, following which the said plot was reallocated to the respondent.

Held: (i) The President in being moved to revoke the Right of Occupancy is not legally required to cause the Land Office to show cause why the right should not be revoked; however, the court I

is quite au fait of the fact that it has inherent powers to look into the grounds upon A which the revocation was based, to be able to rule whether or not these grounds constituted "good cause" for the Land Office to move the President to revoke the right;

(ii) non-compliance with the conditions stipulated in the Right of Occupancy B constitutes "good cause" for the right to be revoked;

(iii) the court finds it equitable for the appellant to be heard on the expenses incurred on the land for the purposes of reaching an assessment of the compensation for the development or improvements on the land.

Case Information

Order accordingly. C

Cases referred to:

1. Director of Lands and Mines v Sohan Singh [1952] 1. T.L.R. (R) 631 D
2. Premchand Nathu and Co. Ltd. v Land Officer [1962] E.A. 738.

L.S. Ballonzi for the appellant

M. Marando for the respondent E

[zJDz]Judgment

Ruhumbika, J.: This is an interesting appeal, involving the disputed right of occupancy (or title) in respect of a plot codified as PLOT NO. 274 EX-DAYA ESTATE in Ilala District in the City of Dar es Salaam. F

The crux of the appeal is whether or not there had been "good cause" for the renovation of the Right of Occupancy of the appellant, following which revocation the said plot was re-allocated to the respondent, Saraiya Rashidi, by the District Land Development G Officer, presumably of Ilala District, who testified before the lower Court as PW. 2.

The appellant, Rajabu Hassara, was offered the Right of Occupancy in respect of the plot described supra as far back as 1968, and he was in that respect the first occupier of the land comprising that plot. The Right of Occupancy of this appellant was eventually H revoked by the President, who was moved by the Land Officer to revoke the title for non-compliance with the conditions stipulated in the Right of Occupancy in question. According to the evidence, the District Land Development Officer described the Right of Occupancy granted to the appellant as a "short-term" Right of Occupancy renewable I year after year, and went on to explain that it is one of the

conditions stipulated in the right of Occupancy that "the President may revoke the right A for good cause".

The respondent in this appeal, Saraiya Rashidi, had instituted a suit against the appellant, Rajabu Hassara, in the Resident Magistrate's Court at Kisutu, in Civil Case No. 321 of 1977, in respect of the disputed plot. There was a full hearing of the suit, and B the District Land Development Officer was called as a witness to testify for the plaintiff in respect of what went on and what had activated the Land Office to move the President to revoke the Right of Occupancy of the first occupier, that is the appellant before this court. The Lower Court was satisfied that there was "good cause" for the C revocation of the right, and following that finding the lower court decreed for the plaintiff, the respondent before this court.

The lower court decreed that the defendant before that court (who is the appellant Rajabu Hassara) should remove all the materials he had put on the disputed plot, except the foundation, which had been paid for by the plaintiff, i.e. the respondent before this D court, and that such demolition should be carried out within three weeks to enable the plaintiff erect a building onto the plot through a loan procured from the Tanzania Housing Bank, and further that the demolition should be at the expense of the defendant (i.e. the appellant). E

The defendant before the lower court was not satisfied with the decision of that court and decided to appeal to the High Court.

During the hearing of the appeal both the appellant (Rajabu Hassara) and the respondent (Saraiya Rashidi) were represented by learned counsel. Mr. Ballonzi, learned Advocate, F represented the appellant and Mr. Marando, learned Corporation Counsel from the Tanzania Legal corporation, represented the respondent. The appeal was well argued by both counsel. Mr. Ballonzi, for the appellant set out four main grounds of appeal in the memorandum of appeal. G

1. That the learned Principal Resident Magistrate erred in law and on the facts in determining that the appellant's title to the suit premises (sic) had been properly revoked.

2. That the learned Principal Resident Magistrate erred in law and on the facts in H finding that the respondent had a valid Right of Occupancy to the suit premises (sic).

3. That the learned Principal Resident Magistrate erred in law and on facts in finding that the appellant was not entitled to build a house to completion on the suit premises (sic). I

4. The learned Principal Resident Magistrate abdicated his judicial responsibility A by refusing and or neglecting to assess the value of exhausted improvements on the suit premises (sic).

The learned counsel for the appellant conceded during the hearing of the appeal that the B notice of the revocation of the right in respect of the appellant was published in the official Gazette on 26/5/76, and that the plot was eventually re-allocated to the respondent on 29/12/76. The same counsel further conceded that although there was no statutory requirement that the occupier has to be notified of the intention to revoke the C title, it has been held that it was necessary to notify the occupier (in this case the appellant) of the intention to revoke the right (or title), otherwise the revocation would be null and void, relying on the decision in the case of Director of Lands and Mines v Sohan Singh [1952] 1 TLR(R) 631, at p. 635, where the very passage by Abernathy, D J. was approved in the case of Prem Chand Nathu and Co. Ltd. v Land

Officer [1962] E.A. 738 at p. 745. The learned counsel went on to argue that if the appellant was given the opportunity to show cause why the right should not be revoked he could have shown to the Land Office that he was constructing the house and that the right E could not have been revoked. Since the appellant was not given that opportunity, then the revocation is null and void, and the Land Office had nothing to re-allocate to the respondent.

Mr Marando for the respondent vehemently argued that the revocation was proper, and F that after the revocation the appellant had no title to the land comprising the disputed plot any more. He submitted that the appellant was allocated the plot under a short-term Right of Occupancy in 1968, but because the appellant failed to comply with the conditions of developing the said land, the Right of Occupancy had to be eventually G revoked. Relying on the evidence of the District Land Development Officer (PW.2) who testified before the lower court, the occupier (i.e. the appellant) was supposed to erect a building of the standard approved by the City Council within one year. But than up to 1976 the appellant had not even submitted the building plans to be approved by the City H Council, nor had he sent such plans to the land Registry for noting of the approval. According to the land Officer, Mr. Marando argued, the house was to be completed for occupation in 1969, but for about 8 years, the appellant had not been able to complete the building, thereby failing to comply with the conditions stipulated in the Right of I Occupancy, which state of affairs constituted "good cause" for revocation. Mr

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RUHUMBIKA J

Marando went on to distinguish the two notices involved in the arguments of this appeal. A He agreed that whenever "good cause" arises for the revocation, the occupier is served with the notice of revocation, which is eventually published in the Official Gazette. He then contended that the notice of the revocation was served on the appellant through his postal address, and latter it was published in the Official Gazette as General Notice B No 384 of 1976 published on the 26th March, 1976. The learned counsel for the appellant did not dispute these facts.

Mr. Marando went on to argue that the other notice involved in the argument on the part C of the appellant, which appears to be precedent to the revocation of the right, is not a legal requirement; that is say there is no legal requirement for the President to serve the occupier with notice to show cause as to why the right should not be revoked. The kind of notice that the occupier is served with, is only to inform him of the revocation decision, after such a decision had been reached where there is "good cause" for such a D revocation, and that is when the Land Office would move the President under the law to revoke the right. The learned counsel for the respondent went on to argue that after all the legal formalities were complied with, the Land Office re-allocated the vacant plot to E the respondent through a letter produced as exhibit "D" in the lower court. The respondent proceeded and obtained a Certificate of Title (or Right of Occupancy) on that plot -No. 186205/47 in the name of SARAIYA RASHID. The land Office at Ilala by the time of revocation called in the Valuer from the Ministry of Lands, who made the F valuation of the foundation and put it at the value of Shs. 6,000/=, and the appellant was notified that and asked to go for the compensation. However, it is further contended by the respondent's side that the appellant never paid heed to the revocation order and as such

continued to build hurriedly onto the foundation he had laid. This prompted the G respondent to go and complain to the Land Office at Ilala, and the appellant was sent a letter (exhibit "F") to inform him that the said plot no longer belonged to him, but he would not care. On 23/6/1977 a court injunction was served against the appellant through an affixation on the plot, and the appellant, according to Mr. Marando, accepted H to have seen the injunction, despite which fact the appellant continued to build on the plot, the conduct which amounted to trespassing on the land of the respondent. Mr. Marando sought to distinguish the case of the Director of Lands v Sohan Singh cited by the learned counsel for the appellant from the present appeal before this court. He I argued that in that case an extension of

time within which to complete the work had been granted, and that extended time had A not elapsed, but the officer of the Crown simply anticipated that the party would not complete the works and revoked the right without having inquired into whether or not the party would complete the building in time. Learned counsel for the respondent went on to argue that was a particular case, and that its particularity was confirmed in the B second case cited by the learned counsel for the appellant that is that case of Prem Chand Nathu and Co. Ltd. v Land Officer, and that if anything what was held was that the giving of notice to show cause was not mandatory upon the Crown, and that their Lordships in the Privy Council stated that Abernathy, J. was correct only in the C circumstances of the case before him, i.e in reference to the need to serve a party with the notice to show cause why the right should not be revoked.

This court agrees with the contention of the learned counsel for the respondent that the D President in being moved to revoke the right of Occupancy of the appellant was not legally required to cause the Land Office to serve the appellant with notice to show cause why the right should not be revoked. However, the court is quite au fait of the fact that the court has inherent powers to look into the grounds upon which the E revocation was based, and to be able to rule whether or not these grounds constituted "good cause" for the Land Office to move the President to revoke the right. In this appeal before court, it has been proved, according to the evidence on record, that the appellant was not able to construct and complete the building within the period of time F which was stipulated in the Right of Occupancy offered to him for the development of the plot in question. This clearly indicates that the appellant failed to comply with the stipulated conditions in the Right of Occupancy, and non-compliance with such conditions constitutes "good cause" for the right to be revoked. There is no record to G show that the appellant had approached the Land Office for the extension of time within which to complete the building, but it appears that as long as he had put up a foundation on the plot, the appellant thought that he could keep the plot at that stage of development indefinitely.

Let it be clearly understood here that the Land Office is responsible for the development H of the surveyed (alienated land) plots of which the Rights of Occupancy are offered to the occupiers, and they have therefore a statutory duty to see that the occupiers have to develop their plots according to the conditions agreed upon by the occupier when the Right of

Occupancy is offered to such an occupier who signifies the acceptance of those I conditions by signing
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RUHUMBIKA J
on the Right of Occupancy, after having read and understood those conditions. The A court is aware that some of the documents used by the Land Office are still written in English, but nevertheless the appellant could not have been debarred from understanding that he was supposed to complete the building within one year, i,e, in 1969, but up to the time of revoking the right in 1976 there was nothing more on the plot except the B foundation. This fact that there was just the foundation when the right was revoked is also reflected in the submission of the learned counsel for the appellant where he said: "On the admission of the respondent she found a foundation on the disputed plot. Apparently, the Land Office sent a Valuer to value the foundation and arrived at a figure C of shs 6,000/= a figure which was notified to the respondent but not to the appellant.
After having carefully considered the grounds of appeal as set out in the memorandum, and after having analysed all the arguments of both the learned counsel, this court is fully convinced that the Land Office decided to move the President to revoke the appellant's D right for "good case" as contemplated by the land law governing the Right of Occupancy offered to the appellant. There is no injustice caused to the appellant in the revocation, but the appellant should hold himself to blame for whatever loss he might have incurred in the demolition of whatever structure he erected on the foundation after E the revocation order and after an injunction order of the court to stop him from continuing with the construction. This then disposes of the first three grounds of appeal. The decision of this court to make it clear is that the revocation order was proper and made for "good cause", and could not therefore be declared by this court to be null and F void. There is no basis for this court to upset the decision of the lower court or to have the revocation order nullifed.
As for the fourth ground, that is concerning the assessment of the compensation to the appellant which was done by the Valuer, this court accepts the argument for the G appellant that the assessment was rather arbitrary because the appellant was not given the opportunity to show what he had incurred in respect of the foundation erected on the plot. The court finds it equitable for the appellant to be heard on the expenses he incurred regarding that foundation. This court therefore finds that this matter should be left H open for the lower court which heard the suit to go into in detail. The lower court will have to hear the Valuer who did the valuation exercise, hear the appellant and any other evidence that the appellant may have to prove that he spent more than shs. 6,000/= on the foundation. The lower court will then determine the assessment after having I
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heard all the necessary evidence, or after having had the opportunity to see the A documents by way of receipts, or otherwise, which will prove that the appellant spent more than shs. 6,000/= on the foundation. That will then dispose of the second part of the appeal.

Apart from that order to remit the record to the lower court for proper determination of B the assessment of the shs. 6,000/= compensation disputed by the appellant, the appeal is otherwise dismissed with costs.

C Appeal dismissed.

1983 TLR p118

D

[zRPz]GEORGE MHANDO v REPUBLIC 1983 TLR 118 (HC)

Court High Court of Tanzania - Dodoma
Judge Maina J

November 8, 1983
CRIMINAL APPEAL 32 OF 1982
Flynote
Criminal Practice and Procedure - Judgment incomplete - Conviction not entered - S.171, Criminal Procedure Code, Cap 20 - Failure of justice - Whether to order retrial.
-Headnote
The appellant was charged before the District Court at Dodoma with stealing by person E employed in the public service c/s 270 and 265 of the Penal Code. At the end of the trial the learned resident magistrate wrote a summary of the evidence but he did not complete the judgment. He left a whole blank page, apparently intending to complete the F judgment later on. Then he proceeded to sentence the appellant to seven years' imprisonment. The appellant wishes the High Court to overturn the sentence of the learned resident magistrate.
Held: (i) Since section 171 of the Criminal Procedure Code provides that a judgment G must contain points for determination and reasons for the decision and that a conviction must be recorded, failure to comply with those provisions amounts to failure of justice;

(ii) failure to complete a judgment is the same as failure to write a judgment H because in both instances the points for determination and reasons for decision are not known; it is a failure of justice to pronounce a sentence without writing a judgment and without recording a conviction;

(iii)it would not be unfair to order a re-trial in the case where a failure of justice I has been manifested but where the appellant has not served a substantial part of the sentence.

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MAINA J

Case Information

Order accordingly. A

Cases referred to:

1. William Msaka v.R. [1968] H.C.D. n. 216
2. R. v Suna [1971] H.C.D. n. 208
3. Mugoma v R. [1967] E.A. 676 B

4. Ilanda Kisonga v.R. [1960] E.A. 780
5. Kangoye Bundala v R. [1959] E.A. 900
6. Willy John v R. [1953] 23 EACA 509

D. Mbezi for the appellant C

V. Lyimo for the republic

[zJDz]Judgment

Maina, J.: The appellant, George Mhando, was charged before the district court at Dodoma with stealing by person employed in the public service contrary to section 270 D and 265 of the Penal Code. At the end of the trial, that is, after the prosecution and defence had adduced evidence, the learned resident magistrate wrote a summary of the evidence but he did not complete the judgment. He left a whole blank page, apparently intending to complete writing the judgment later on. Then he proceeded to sentence the E appellant to seven years' imprisonment.

Mr. Mbezi, learned counsel for the appellant, argued three grounds of appeal. Firstly, he said that the learned resident magistrate grossly erred in sentencing the appellant to imprisonment without first convicting him of any offence. Secondly, the learned counsel F said that the evidence was wholly circumstantial and that it did not justify a conviction. Thirdly, Mr. Mbezi submitted that the sentence was manifestly excessive. In arguing the first ground of appeal, learned counsel for the appellant cited section 171 (1) of the Criminal Procedure Code which provides as follows: G

Every judgment under the provisions of section 170 shall, except as otherwise expressly provided by this Code, be written by, or reduced in writing under the direction and superintendence of the presiding judge or magistrate in the language of the court, and shall H contain the point or points for determination, the decision thereon and the reasons for the decision and shall be dated and signed by such presiding officer as of the date on which it is pronounced in open court. I

1983 TLR p120

MAINA J

It seems therefore that apart from the judgment being in writing it must also contain the A points for determination and the reasons for the decision. Mr Lyimo, learned Senior State Attorney, conceded that the judgment of the learned resident magistrate was incomplete and that it did not comply with the requirements of section 171(1) of the Criminal Procedure Code. I may also add that even section 171(2) of the Criminal B Procedure Code was not complied with because the learned trial magistrate did not record a conviction and so he did not state the provision of the law under which the appellant was convicted. All that the learned resident magistrate wrote in what he purported to be a judgment was a summary of the evidence for the prosecution and the C defence. He did not record a conviction and neither did he state the points for determination or the reasons for the decision as required of him. Mr. Lyimo learned Senior State Attorney did not seek to support the conviction but he submitted that a retrial should be ordered. Mr. Mbezi, learned counsel for the appellant, argued, on the D other hand, that as there was failure of justice, the conviction should be quashed and he further submitted

that since the appellant had been in custody for over one year, it will not be in the interest of justice to order a retrial. Mr. Mbezi cited two cases of this court in support of his argument. These are the cases of William Msaka v R. [1968] HCD.n. E 216 and R. v Suna [1971] HCD n. 208.

The conviction in the William Msaka case was quashed because the judgment of the trial court was "a brief summary of the prosecution evidence but was overwhelmingly devoted to the critical analysis of the defence". This occasioned failure of justice. The F case of R. v Suna cited by Mr. Mbezi is more relevant to the case now under consideration. In that case, like in the present one, the learned trial magistrate did not write a judgment at all and he did not record a conviction. The trial court sentenced the appellant to a fine. That is exactly what happened in the present case. In the Suna case G Mnzavas, Ag. J. (as he then was) had this to say:

It is impossible to tell how the trial magistrate came to the conclusion that the accused should be fined. Failure to write a judgment is an incurable irregularity.

With respect, I agree with what my learned brother judge said in that case. Since section H 171 of the Criminal Procedure Code provides that a judgment must contain points for determination and reasons for the decision and that a conviction must be recorded, failure to comply with those provisions amounts to failure of justice. Like in the Suna I case, the learned trial magistrate in this case did not

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MAINA J

write a complete judgment and it is impossible for this court to know how he arrived at a A conclusion that the appellant should be imprisoned. Failure to complete a judgment is the same as failure to write a judgment because in both instances the point for determination and reasons for the decision are not known. It is failure of justice to pronounce sentence without writing a judgment and without recording a conviction. B

In another case, Mugema v R. [1967] E.A. 676, the trial magistrate did not sign or date the judgment and it was not known whether the judgment was read in the appellant's presence or how he was sentenced. Platt, J. said that the omissions constituted gross irregularity and the court was not prepared to cure them under section 346 of the C Criminal Procedure Code. The conviction was quashed.

It will be seen from the above cases that where a magistrate has not complied with the provisions of section 171 of the Criminal Procedure Code, this court has always quashed the convictions. Failure to comply with the provisions of section 171 of the D Criminal Procedure Code has been held by this court to amount to failure of justice.

Mr. Lyimo, learned Senior State Attorney, conceded that the conviction could not be supported but he urged this court to order a retrial. The learned Senior State Attorney cited some decisions of the Court of Appeal for Eastern Africa one of which is Ilanda E Kisongo v R. [1960] E.A 780. In that case, the trial judge did not write a judgment but wrote a short note in which he said that he concurred with the unanimous opinions of the assessors. The learned judge having said that, he proceeded to convict the appellant and F sentenced him to death. The Court of Appeal cited the cases of Kagoye Bundala v.R. [1959] E.A. 900 and Willy John v R. (1953) 23 EACA 509 and

held that a defective judgment will not necessarily invalidate a conviction if there is sufficient material on the record to enable the court of appeal to consider and determine the appeal on its G merits. The Court of Appeal found that the summing up of assessors was inadequate on the issue of burden of proof and so the conviction was quashed. A retrial was ordered.

As I have already pointed out earlier in this judgment, where a trial court has failed to comply with section 171 of the Criminal Procedure Code, this court has always quashed H the conviction because such failure to comply with that provision of the law has been held to amount to failure of justice. Where judgment has not been written at all or where it is incomplete, it amounts to the same thing. It is not possible under such circumstances for this court to I

know what reasons the trial magistrate had in arriving at a conviction. In this case there A was not even a conviction but the trial magistrate merely summarized the evidence for the prosecution and the defence and then proceeded to sentence the appellant to seven years' imprisonment. There was no decision made and so no reasons were given. That B was a clear non-compliance with section 171 of the Criminal Procedure Code. The learned resident magistrate had in mind a conviction but that should have been recorded together with the reasons as required by the law. Failure to complete the judgment amounted to failure of justice because as Mnzavas, Ag. J. (as he then was) said in the C Suna case cited above, it is impossible to tell how the trial magistrate came to the conclusion that the appellant should be sentenced. In my opinion, failure to complete a judgment has the same effect as failure to write judgment, and it is an incurable irregularity. The purported conviction is quashed and the sentence is set aside. D

I do not find it necessary to consider the second and third grounds of appeal. In the second ground of appeal it was argued that the evidence was wholly circumstantial and that it did not justify a conviction. The third ground of appeal was that the sentence was E manifestly excessive. I have to consider whether a retrial should be ordered. Mr. Mbezi submitted that a retrial will not be fair because the appellant has served a substantial part of the sentence. Let me point out at the outset that the appellant has already served about eighteen months out of the seven years' imprisonment imposed by the district court. That is not a substantial part of the sentence. Now, as Mnzavas, Ag. J. F (as he then was) said in the Suna case, in ordering a retrial all the circumstances must be considered and each case must depend on its own facts. In that case, the appellant was sentenced to a fine which he paid. As I said, no judgment was written by the trial court in the Suna case. When the appeal came up for hearing, a period of about one G year had elapsed. The whereabouts of the appellant in that case were not known. Furthermore, the exhibits, which were pieces of uncut diamonds, had been forfeited to the Government and they were not available to be produced as exhibits in a retrial. H Under those circumstances, the court found that it was a waste of time to order a retrial.

In the present case, the appellant's whereabouts are known as he is serving the sentence in a known prison. The appellant has served only a small portion of the sentence. The exhibits are all

documentary and they are still available. Further, the amount involved was I a large sum of money which belonged to the Government, and it was not
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recovered. Considering all these facts, I consider that a retrial is appropriate in the A interest of justice.
This appeal is allowed. The conviction is quashed and the sentence is set aside. It is ordered that the case be remitted to the District Court at Dodoma for retrial.
B Order accordingly.
1983 TLR p123
C
[zRPz]JEREMIAH KAMAMA v BUGOMOLA MAYANDI 1983 TLR 123 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

July 6, 1982
CIVIL APPEAL 4 OF 1981
Flynote
Tort - Malicious prosecution - Elements of.
Tort - Malicious prosecution - Allegation that plaintiff had committed a crime - Allegation D made with improper motive - Plaintiff arrested, charged but later released for lack of evidence - Prosecution malicious.
-Headnote
The defendant made an allegation at a public meeting that the plaintiff was responsible E for a spate of arson committed in the village. The defendant further ordered the arrest of the plaintiff as a result of which the plaintiff was handed to the police, and charged but was latter released for lack of evidence. It was established that the allegation was made on account of political rivalry and was false. In the District Court, judgment was given F for the plaintiff who was awarded shillings 5,000/= as damages. Dissatisfied with this decision, the defendant (appellant) appealed to the High Court.
Held: (i) For a suit for malicious prosecution to succeed the plaintiff must prove G simultaneously that:

(a) he was prosecuted;
(b) that the proceedings complained of ended in his favour;
(c) that the defendant instituted the prosecution maliciously;
(d) that there was no reasonable and probable cause for such prosecution; and H
(e) that damage was occasioned to the plaintiff;

(ii) for purposes of malicious prosecution, a person becomes a prosecutor when he takes steps with a view to setting in motion legal processes for the eventual I prosecution of the plaintiff;

(iii) malice exists where the prosecution is actuated by spite or ill-will or indirect A or improper motives.

Case Information

Appeal dismissed.

Cases referred to: B

1. Brown v Hawkes [1891] 2 Q.B. 718
2. Tumanieli v Aisa Issai [1969] H.C.D. n. 280
3. Hick v Faulkner (1878) 8 Q.B. 167
4. Herniman v Smith [1938] 1 All. E.R.1 C

Chipeta, J: In Shinyanga District Court the respondent, Bugomola Mayandi, - hereinafter referred to as the plaintiff - successfully sued the appellant, Jeremiah Kamama - hereinafter referred to as the defendant - for malicious prosecution and was awarded shs. 5,000/= as damages. Dissatisfied with the decision of the trial court, the D defendant has appealed to this court.

At the trial, the plaintiff and his witness adduced the following evidence: the plaintiff and the defendant are known political rivals in their village of which the defendant is the chairman after defeating the plaintiff at the elections. E

Some time before this suit, there had been a spate of arson in the village. At a public meeting, the defendant accused the plaintiff of being involved in the arson. He did not stop there: he later instructed members of the people's militia to arrest the plaintiff and F hand him over to the police on the allegation that the plaintiff had committed arson.

The plaintiff was then arrested and was charged with the offence of arson. Police investigations, however, completely failed to unearth any evidence to connect the plaintiff with the charge of arson. In the end police had no option but to withdraw from the G prosecution and so the plaintiff was discharged. This was after the plaintiff had been in custody for some 30 days.

It was the plaintiff's evidence that the defendant's report was false, made maliciously and H with spite and ill-will, and that in making the allegation the defendant was motivated by the political rivalry between them.

In his defence, the defendant did not seek to justify the allegation. On the contrary, he completely denied having made the report to police or to the People's militia or to anyone else.

The learned magistrate carefully considered the evidence before him and found as a fact I that the defendant made the allegation at a

meeting that the plaintiff had committed arson; that the defendant instructed members of A the people's Militia to arrest the plaintiff and take him to police; that as a result the plaintiff was arrested and charged but was later released for lack of evidence; and that the report was false.

From the evidence and his findings of fact, the learned trial magistrate came to the B conclusion that the false report was made maliciously with a view to victimizing the plaintiff

who had been the defendant's political rival. The learned magistrate accordingly found for the plaintiff.

In order that a suit for damages for malicious prosecution should succeed, a plaintiff, in C my view, has to prove the following; (a) that he was prosecuted; (b) that the proceedings complained of ended in his favour; (c) that the defendant instituted or carried out the prosecution maliciously; (d) that there was no reasonable and probable cause for such prosecution; and (e) that the plaintiff suffered damage as a result of such D prosecution.

The first question that arises, therefore, is when is one said to be a "prosecutor" for the purpose of a suit for damages for malicious prosecution? In my opinion, a person becomes a prosecutor in this regard when he takes steps with a view to setting in motion E legal processes for the eventual prosecution of a person whom he alleges has committed a crime. For instance, if A tells the police that B has stolen A's shirt and as a result of that B is arrested and charged with the offence of theft, A will be said to have set in motion B's prosecution. A, therefore, will be said to be a prosecutor in a suit for F damages for malicious prosecution.

The prosecution, however, must have been made or done maliciously. What amounts to "malice" in this regard is not easy to define. In the English case of Brown v Hawkes [1891] 2 Q.B. 718, at page 723, Cave, J. defined malice as some other motive than a G desire to bring to justice a person whom he (the accuser) honestly believes to be guilty. In Halsbury's Laws of England, the term malice is defined as follows: H

> The malice which a plaintiff in an action for damages for malicious prosecution...has to prove is not malice in its legal sense, that is, such as may be assumed from a wrongful act done intentionally, without just cause or excuse, but malice in fact - malus animus - indicating that the defendant was actuated I

> either by spite or ill-will against the plaintiff, or by indirect or improper motives. A (See vol 25, at page 356 - 3rd Edition).

For my part, I prefer the latter definition, qualified to this extent, that the accuser, in B addition to spite or ill-will or indirect or improper motives, was not actuated by a genuine desire to bring to justice the person he alleges to be guilty of a crime.

Having proved that he was prosecuted maliciously and the proceedings in question ended in his favour, the plaintiff must go on to prove that the defendant or accuser had C no reasonable and probable cause for such prosecution. This is an important element of the action because it is not every prosecution which ends in an accused's favour that exposes an accuser to a suit for damages for malicious prosecution. If that were so, scores of complainants or police informers would be sued. As Georges, C. J. (as he then D was) stated, in case of Tumaniel v Aisa Issai [1969] H.C.D. n. 280

When there is reasonable suspicion that an offence has been committed and good grounds for thinking that a particular person is responsible it is the duty of every citizen to pass on such information... to the police to help them to find the offender. If the police E act on such information and arrest anyone then the person who has given the information should not be

liable for damages for defamation unless it is plain that he had no good grounds for suspecting the person named and that he was acting spitefully...Similarly there will be cases where the Police take a person into custody for investigation which F seems quite reasonable and no steps are taken. Again in such a case the accuser should not be charged unless it can be shown that he deliberately made a false report....(Where) a report to the Police (is) intended to lead to the investigation of a crime...there should be no compensation payable in such case unless the report is shown to be false and G prompted by malice.

In that case the learned Chief Justice was referring to suits for defamation, but in my view, the principle applies with equal force to suits for damages for malicious prosecution. What, then, amounts to "reasonable and probable cause"? In the English H case of Hick v Faulkner, (1878) 8 Q.B. 167, Hawkins, J., said at page 171:

I should define reasonable cause to be, an honest belief in the guilt of the accused based upon a full conviction, founded upon reasonable grounds, of the existence of a state of I circumstances, which, assuming them to be true, would reasonably lead any

reasonable and cautious man, placed in the position of the accuser, to the conclusion that the A person charged was probably guilty of the crime imputed.

This passage was quoted with approval by the House of Lords in Herniman v Smith, [1938] 1 All E .R. 1, at page 8. I myself cannot improve upon that definition of B "reasonable and probable cause", and so I would respectfully adopt it as my own.

Now, the question whether or not an accuser acted maliciously and without reasonable and probable cause are questions of fact to be decided on the basis of the circumstances C revealed by the evidence in each particular case.

In the instant case, I respectfully agree with the learned trial magistrate's findings of fact that the defendant did accuse the plaintiff of having committed the serious crime of arson and thus put in motion the process of the plaintiff prosecution; that the report was utterly D false; and that the proceedings ended in the plaintiff's favour.

The question, then, is whether the prosecution was malicious. Here, the accusation was, to the defendant's knowledge, false. There was nothing on which a reasonable and cautious man, placed in the position of the defendant, could base suspicion, let alone a E full conviction, that the plaintiff was probably guilty of the offence of arson. Apart from setting in motion the process of the plaintiff's prosecution, the defendant made an accusation in public, and he has failed to justify the accusation. There is also the known fact that the parties are political enemies. In the circumstance, it seems to me, the F inference that the defendant acted through spite, ill-will or peevishness, is a reasonable one.

Was there, then, reasonable and probable cause for the prosecution? Like with malice, it was for the plaintiff to prove lack of reasonable and probable cause. G

It is undoubtedly a difficult task for a party to prove a negative. It is, I think, for that reason that English courts have often held, and I tend to agree, that in general, in proving the absence of

reasonable and probable cause, a plaintiff need only give slight evidence of that. (See Halsbury's Laws of England, Vol. 25, at page 363, 3rd Edition). H

In the instant case, in my view, bearing in mind that the report was, to the defendant's knowledge, false; that there was not an iota of evidence which could have been a cause for suspecting the plaintiff which could have prompted a reasonable and cautious man to think, let alone say, that the plaintiff had committed arson, the inference that there was a I lack to reasonable and probable cause was justified.

1983 TLR p128

Finally, I turn to the question of "damages". Here, I comprehend, means damage to A property, damage to a man's reputation such as where the matter is scandalous, or damage to his person such as where his life, limb or liberty is endangered.

In the case before me, the respondent's liberty was not only endangered but actually lost B for about a month, and the law presumes damage in such a case. To that extent, therefore, the plaintiff had proved damage. The respondent further proved damage to property by establishing by evidence that as a result of his incarceration his crops in his shamba were exposed to waste and were in fact destroyed.

As to the assessment of damages, I can see no reason to interfere with the trial court's C assessment. This was a very serious allegation and the plaintiff, in addition, proved damage to property.

For the foregoing reasons, this appeal must fail. It is accordingly dismissed with costs in this Court and the court below.

D Appeal dismissed.

1983 TLR p128

E

[zRPz]YUSUF MASUDI v REPUBLIC 1983 TLR 128 (HC)

Court High Court of Tanzania - Tabora
Judge Chipeta J

June 9, 1983

CRIMINAL APPEAL 38 OF 1982 F

Flynote

Criminal Practice and Procedure-Sentence passed by a subordinate court illegal (Minimum Sentences Act, 1972) - Duty of appellate court. G

-Headnote

On 6th January, 1983 the High Court dismissed the appellants' appeal against conviction. On the question of sentence the High Court held that the sentence of four years passed in respect of the appellants was illegal in that it was contrary to the H provisions of the Minimum Sentences Act, 1972; the court, however, ordered the appellant to be called upon to show cause why their sentences should not be enhanced. The appellants submitted that to enhance the sentences

would be unjust to them for they were not aware that the offences were scheduled under the Minimum Sentences Act, 1972. I

1983 TLR p129

CHIPETA J

Held: Where a sentence passed by a lower court is illegal, a superior court is bound in A law to rectify such a sentence, even if the result of such a course being taken is to cause hardship to the convict.

Case Information

Order accordingly. B

Case referred to:

DPP v Bunyinyiga Kasiri and Another [1978] LRT n.1

Ntabaye for the appellants.

[zJDz]Judgment

Chipeta, J.: On 6th January, 1983, I dismissed the appeal against conviction by Yusuf C Masudi, hereinafter referred to as the first appellant. On the question of sentence, I held that the sentence of four years' imprisonment passed in respect of the 1st appellant, and sentences of fines passed in respect of the original 4th and 5th accused persons, D hereinafter referred to as the second and third appellants, were illegal in that they were contrary to the provisions of the Minimum Sentences Act, 1972. I accordingly ordered that the appellants be called upon to show cause why their sentences should not be enhanced. E

Mr. Ntabaye, for the appellants, submitted that to enhance the sentences would be unjust to the appellants who had not been aware that the offences were scheduled under the Minimum Sentences Act, 1972.

For my part, I see no reason to change my view that the sentences were illegal. As for F the undesirable consequences that are likely to flow from the enhancement of the sentences, I only wish to say that where a sentence passed by lower court is illegal a superior court is bound in law to rectify such a sentence, even if the result of such a course being taken is to cause hardship to the convict. G

I am fortified in this by the decision of the Court of appeal for East Africa in the case of D.P.P. v Bunyinyiga Kasiri and Ano., [1978] LRT n. 1. In that case illegal sentences were imposed on the respondents and by the time the Court heard the appeal by the H D.P.P., the respondents had since been released. In allowing the appeal, the Court held that where an appeal court declares a sentence of a lower court illegal, e.g., because it offends the Minimum Sentences act, it had no power to prevent the due process of the law being carried out and must impose the correct sentence even if this leads to undesirable consequences. I

1983 TLR p130

That being so, and in view of my earlier finding, the sentences imposed on each of the A appellants are hereby set aside and substituted therefor is a sentence of five years' imprisonment in respect of each appellant. The fines imposed on each of the 2nd and 3rd appellants, if paid, shall forthwith be refunded to them.

B Order accordingly.

1983 TLR p130
C
[zRPz]SYLIVERY PASCHAL v REPUBLIC 1983 TLR 130 (HC)

Court High Court of Tanzania - Mwanza
Judge Mfalila J

February 20, 1980
CRIMINAL APPEAL 342 OF 1979
Flynote
Criminal Practice and Procedure-Being in unlawful possession of Part I Poison c/s 25(2), D Cap. 416 - Whether medical officer competent to identify drugs.
Criminal Practice and Procedure - Charge of receiving-Necessity of proof of theft.
-Headnote
The appellant was convicted of two counts in the District Court of Ukerewe District. In E the first count he was charged with and convicted of being in possession of Part I poison contrary to section 25(2) of Cap. 416, and was sentenced to 12 months' imprisonment. In the second count he was charged with receiving stolen property contrary to section 311(1) of the Penal Code, Cap. 16, for which he was sentenced to 3 F years' imprisonment. The present appeal is against sentence and conviction. The circumstances giving rise to the preferring of the charge are fully reproduced in the judgment below.
Held: (i) A conviction for the unlawful possession of Part I Poison cannot be sustained G on the basis of an identification of labels of the drug by a medical officer who is neither qualified as a pharmacist nor empowered to determine the chemical components of the drug;
(ii) before a charge of receiving stolen property can be made, it is necessary for H the prosecution first to prove the theft of the articles in question.
Case Information
Appeal allowed.
No case referred to. I
1983 TLR p131
MFALILA J
F.S. Kinabo for the respondent. A
[zJDz]Judgment
Mfalila, J.: The appellant was convicted of two counts in the District Court at Ukerewe. In count I he was charged with and convicted of being in possession of Part I poison contrary to section 25 (2) of Cap. 416, and was sentenced to 12 months B imprisonment. In count 2 he was charged with receiving stolen property contrary to section 311 (1) of the Penal Code, for which he was sentenced to 3 years' imprisonment.
With regard to count 1 the first obvious error is that the appellant was charged, tried and convicted under a repealed statute. The Pharmacy and Poisons Ordinance Cap. 416 C under

which the appellant was charged was repealed by the Pharmaceutical and poisons Act 1978 which came into force on 1st March 1979. This new Act carried higher sentences than those provided under the repealed statute. It was alleged in this count that when the appellant's house was searched, one bottle of Procaine penicillin was found D and according to the District Medical Officer, this is a Part I poison. With respect, the District Medical Officer is no pharmacist, hence he does not have the qualifications to analyse any drug into its chemical components to determine its identity. Indeed the only E way in which he could tell the identity of these drugs was by the labels on the containers. He declared himself unable to determine the identity of drugs in containers without labels. The first question is why should the court have wasted the time of this man to come and only read labels for them. If the prosecutor and the magistrate are F literate, as I presume they are, they could read the labels for themselves. The second question is what guarantee is there that the labels and the contents tallied? Lastly who gave the District Medical Officer the power to determine whether a certain drug is on Part I of the Poison List? Mr. Kinabo who appeared for the Republic supported the G conviction on this count, but for the above reasons I do not share this view. The prosecutors as well as the Courts must make a serious effort to understand the legislation, otherwise they will never succeed in prosecuting offences under this Act. As the charge was not proved I allow the appeal in count 1, quash the conviction and set H aside the sentence of 12 months' imprisonment.

With regard to the charge in count 1 & 2, I don't think there was any evidence showing that any of the items enumerated in this charge had been stolen from anywhere. Before going on to charge with receiving, it was necessary for the prosecution first to prove the I theft of the articles. This was not done, it was only left to be

presumed. There is no room for such presumption for offence under section 311. A

Accordingly yet again I allow the appeal in Count 2, quash the conviction and set aside the sentence of 3 years' imprisonment. If he is not otherwise lawfully detained, he should be released from prison forthwith. B

Appeal allowed.

1983 TLR p132

C

[zRPz]ATHANAS MAKUNGWA v DARINI HASSANI 1983 TLR 132 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Bahati J

September 6, 1983
(PC) MATRIMONIAL CIVIL APPEAL 5 OF 1982 D
Flynote

Family Law - Divorce - Irreparable breakdown of Marriage - Petition founded exclusively on petitioner's wrong-doing - Whether divorce decree should be granted (s 107 (1) (a) of the Law of Marriage Act, 1971). E

Family Law - Divorce petition - Requirement of reference to Conciliation Board - Whether a mere letter suffices as reference - S. 101 of the Law of Marriage Act, 1971.

-Headnote

This is an appeal against the judgment of the District Court at Kisutu in which the learned F District Magistrate reversed the judgment of Kinondoni Primary Court and granted divorce to the respondent in this appeal. The Primary Court had dismissed the petition on the ground that there was no reference to the Conciliation Board prior to the filing of the suit. The District Court had found that the marriage between the parties had G irreparably broken down and that exhibit 3 (which was in the form of a letter) in the trial court was a document from the Conciliation Board showing that the matter had been referred to them. The main issues on appeal are whether the marriage had broken down H irreparably and whether the matter was referred to the Conciliation Board prior to the filing of the petition for divorce in the Primary Court.

Held: (i) Where the petition is founded exclusively on the petitioner's own wrong-doing I in the absence of any special reason a divorce decree should not be granted;

1983 TLR p133

BAHATI J

(ii) where there is no certificate within the meaning of s. 101 of the Law of A Marriage Act, 1971 from the Conciliation Board indicating its failure to reconcile the spouses a petition for divorce becomes incomplete.

Case Information

Appeal allowed. B

No case referred to.

[zJDz]Judgment

Bahati, J.: This is an appeal by Athanas Makungwa, the appellant in this appeal, against C the judgment of the District Court at Kisutu in which the learned District magistrate reversed the judgment of Kinondoni Primary Court and granted divorce to Darini Hassani the respondent in this appeal.

The Primary Court at Kinondoni heard a petition for divorce brought by the respondent D against the appellant. The evidence adduced in support of the petition was that the appellant told the respondent that he was tired of her and that he no longer enjoyed sex life with her and he therefore wanted his dowry back. Then the appellant wrote what is commonly known as "talak" to signify that he had no intention of living with the E respondent. This "talak" was produced in the trial court as exhibit 1. Then the respondent filed this suit.

The appellant on the other hand said in the trial court that he wrote exhibit 1 after the respondent had insisted that she get a "talak" from him or else she would stab him with a F knife which she had. Moreover the respondent used to sleep outside the matrimonial home with

other men. Also the respondent's mother had objected to their marriage from the beginning and the respondent used to tell him that their marriage could not go on.

The Primary Court dismissed the petition on the grounds that there was no reference to G the Conciliation Board prior to the filing of the suit. On appeal to the District Court, the District Court found that the marriage between the parties had broken down irreparably and that exhibit 3 in the trial court was a document from the Conciliation Board showing that the matter had been referred to them. H

The main issues on appeal are whether the marriage has broken down irreparably and whether the matter was referred to the Conciliation Board prior to the filing of the petition for divorce in the Primary Court. As to the 1st issue, I have no difficulty in I agreeing with the District Court that this marriage has irreparably broken

down. There appears to be no more love left between the parties and even the appellant A has indicated that he wants his dowry back. But from the evidence which has been adduced, no real grounds of divorce have been proved by the respondent. The respondent did not in her evidence prove any matrimonial offence in particular or in general against the appellant. On the contrary, the matrimonial offence which appears to B have been referred to in this case is said to have been committed by the respondent. The appellant in his evidence alleged that the respondent was sleeping out with other men. Also the respondent is alleged to be quarrelsome. All these allegations were not denied by the respondent. It would appear then that the petition is founded exclusively C on the respondent's wrongdoing, the respondent here being the petitioner in the trial court. By virtue of section 107 (1) (a) of the Law of Marriage Act the court is precluded from granting divorce in a situation where the petition is founded exclusively on the (petitioner's) respondent's own wrongdoing. I cannot see any special reason for directing D that divorce decree be granted notwithstanding that the respondent is the only wrongdoer. I therefore hold that the District Court should have refused to grant a decree of divorce in this case.

I will now deal with the second issue. This is whether there was a reference to the E Conciliation Board in terms of section 101 of the Law of Marriage Act prior to the filing of the petition for divorce. Section 101 of the Act provides thus:

> No person shall petition for divorce unless he or she has first referred the matrimonial F difficulty to a Board and the board has certified that it has failed to reconcile the parties.

In this case there was exhibit 3 which is letter from the Secretary of Zone No 6 G Makurumla ward to the Chairman, Conciliation Board requesting the said Chairman to give a letter to the respondent Darini Hassan to enable her to file a divorce suit in Court. This letter goes on to say that the Zonal Conciliation Board is tired of reconciling the parties. The question is whether this letter exhibit 3 is a certificate from a Board in H accordance with the provisions of section 101 of the Law of Marriage Act. I think not. This is because the said letter is of general observation. Either one or both parties used to go to the Board for reconciliation. It is not clear from the letter whether both parties went before the board and the board failed to reconcile them.

Furthermore, the letter is I appealing to another board to issue a letter to the petitioner to take to court. This letter cannot be said
1983 TLR p135
to be a certificate of the Board directed to the Primary Court expressing its inability to A reconcile the parties. I therefore differ from the finding of the District Court and hold that this letter (exhibit 3) is not a certificate from the Board within the meaning of s. 101 of the act. I uphold the finding of the trial Court that there was no reference to a Board prior to the filing of the petition for a decree of divorce. The petition therefore was B incompetent and could not be entertained by the court.
For the above reasons as disclosed in dealing with the two issues, I allow this appeal. I do declare that the marriage between the parties still subsists. I make no order as to costs.
C Appeal allowed.
1983 TLR p135
D
[zRPz]BARTAZAR S. MJAGAZI v REPUBLIC 1983 TLR 135 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Munyera J

November 15, 1983
CRIMINAL APPEAL 21 OF 1983 E
Flynote
Criminal Practice and Procedure - Person pretending to be a victim of police activities - Whether proper to charge him with impersonating a police officer.
-Headnote
The appellant, and one Ominde (PW1) and his friend Paulo had been ordered by one F man who declared himself to be a police officer to assemble at a certain place for the purposes of a search. The appellant had promptly obeyed the order to be searched. It was discovered that the person who claimed to be a policeman was in fact not a policeman and that the appellant knew that the man was not a policeman and was G actually helping him to swindle Ominde and his friend Paulo. The appellant was arrested, charged for impersonating a police officer, was convicted and sentenced to 3 years' imprisonment.
Held: The appellant, for pretending to be a victim of police activities, was not properly H charged with impersonating a police officer for he never suggested that he was a policeman nor did he purport to do anything as a police officer.
Case Information
Appeal allowed. I
1983 TLR p136
MUNYERA J
No case referred to. A

[zJDz]Judgment

Munyera, J.: The appellant was charged with personating a police officer. The facts were strange. On 4/7/81 at about 4 p.m. one Ominde John (PW 1) who was student somewhere, was with his friends along Kaluta street of Mwanza town. The appellant B passed by them. Another man appeared there. He declared himself a Police officer and said he was checking the identities of travellers because an Indian had been beaten and they were looking for the culprits. That man ordered Ominde (PW 1), the appellant and C one Paulo Mahemba, to assemble at a certain place for the search. He ordered them to produce any money each had. The appellant was the first to respond to that order. He said he had Shs.6000/= and surrendered an envelope which contained that money. On counting the amount it was found that it was Shs. 6,200/= not 6,000/=. The police D officer rebuked the appellant that he had told lies in saying he had Shs. 6,000/= whereas he had 6,200/=. He then asked Ominde (PW 1) and his friend Paulo how much money each of them had. They said they had no money with them that time. As these proceedings were on, other people came there. It appears they knew about the policeman because as soon as he saw them he ran away. One of those people who E arrived there was PC Faustin (PW 2). He knew the appellant to be a member of a group who swindle people. He arrested him. It was discovered that the person who said he was a policeman was not a policeman. The appellant knew the man was not a policeman and was helping him to swindle Ominde and his friend Paulo. He was charged F accordingly. In his defence he said he was passing and found a group of people including PC Faustin (PW2). Those people ran away, then Faustin turned on him and said he was a member of the group that ran away. The trial magistrate rejected his G defence, convicted and sentenced him to 3 years' imprisonment.

Obviously the appellant was a member of the group which was pretending to be police officers. This was borne out by the fact that he easily surrendered his Shs. 6,200/= to one of that group and made no mention of that money either at the Police Station or in H court. It was a contrivance to impress other people that he was obeying the orders of Government officials so that others do the same and his conspirators swindle the money they purport to seize. The question is whether he was properly charged with personating a police officer, remembering that he never suggested that he was a policeman. He never I did anything by virtue of being a police officer.

He only pretended to be a victim of the police activities. Could he be said he was aiding A and abetting? This was too indirect an act to justify the application of the doctrine. I allow the appeal. I quash the appellant's conviction, set aside the sentence and order his release.

B Appeal allowed.

1983 TLR p137

C

[zRPz]JEREMIAH VENANT v CLEMENTINA ALEXANDER 1983 TLR 137 (HC)

Court High Court of Tanzania - Mwanza

Judge Bahati J

October 11, 1983
CIVIL APPEAL 94 OF 1983
Flynote
Customary law-Sale of clan land without witnessing of clan members-Reversion of land to clan members.
Customary law-Redemption of clan land-Limitation period 3 months from date of knowledge of sale-Para 568, Cory & Hartnoll's Customary Law of the Haya Tribe-Rule mandatory.
-Headnote
The appellant had originally brought a suit in the Primary Court to recover clan land from the respondent which land had been sold without the witnessing of clan members. The respondent in a cross-appeal before the District Court of Bukoba disputed the order for redemption of the land because the limitation period of 3 months from the date the appellant knew of the sale had elapsed. In the appeal before the High Court the main point for decision is whether the appellant was time-barred from instituting proceedings to nullify the sale.
Held: (i) Under Haya Customary law a relative who wishes to redeem clan land which has been sold without the witnessing of clan members must institute the necessary proceedings within three months of his knowledge of the sale of the land in question;

(ii) under Haya Customary law a relative who wishes to take action in respect of sold clan land is presumed to have knowledge of any sale of which he is interested and in order to rebut such presumption one would need to show by strong evidence that he was not in the village for a long time.
Case Information
Appeal dismissed.
1983 TLR p138
BAHATI J
No case referred to.
[zJDz]Judgment
Bahati, J.: Jeremiah Venant the appellant in this appeal was the plaintiff in the Primary Court where he brought a suit to recover clan land which the respondent Clementina Alexander had bought from Aulelia Ishamba who was also one of the defendants in the Primary Court together with Clementina Alexander. The appellant led evidence in the Primary Court to show that the land in dispute was clan land and that the respondent had bought it for only 4,000/= and not Shs. 40,000/= as the agreement between Aulelia Ishamba and the respondent shows. The appellant wanted the clan shamba returned to the clan from the respondent because the sale had been made without the witnessing of the clan members and that if any payment was to be made, the respondent should be paid by Aulelia Ishamba who had received the money for the clan land. The Primary Court found that the shamba was worth Shs. 40,000/= and held that the appellant could redeem it at Shs. 40,000/= from the respondent. But the respondent was not to be compensated for the house which she had built in the shamba nor was the respondent

allowed to harvest the coffee and bananas in the shamba. This judgment of the Primary E Court made the respondent appeal to the District Court and the appellant also cross-appealed to the District Court. The respondent disputed the order for redemption arguing that the appellant was time-barred since he failed to redeem the land within 3 months after he knew of the sale. The respondent also said in her memorandum of F appeal to the District Court that she was entitled to the compensation of the house in the shamba and that she was entitled to harvest the crops in the shamba. She went on to say that the time within which to redeem the land should have been specified. The appellant argued in his memorandum of appeal to the District Court that the sale of the disputed G land was not for Shs. 40,000/= but only 4,000/=.

The District Court found that the disputed land was clan land. It also held that the time within which to redeem the land should have been specified. It found the house in the clan shamba not an issue in the Primary Court and held that the respondent could bring a H fresh suit claiming compensation. The District Court also held that the respondent was entitled to harvest all the crops in the disputed shamba before redemption. The District Court further found the sale price for the disputed land to be Shs. 40,000/= and not only Shs.4,000/= as claimed by the appellant. In the final analysis, the District Court allowed I the appeal of Clementina Alexander the

present respondent. The court ordered that the respondent should remain in the disputed A shamba because the appellant had failed to institute the proceedings to nullify the sale within 3 months of the date on which he first heard of the sale as envisaged by para 568 of Cory and Hartnoll.

Against this decision of the District Court the appellant still disputes the finding of Shs. B 40,000/= as being the sale price for the disputed shamba. He has also argued that since none of the clan members. In support of this argument the appellant referred to Cory and Hartnoll without citing any specific paragraph of Cory and Hartnoll. Finally the appellant argued that the District Court should not have dealt with the question of delay in C redeeming the disputed land, since this was not in issue in the Primary Court and that in any case the appellant was on safari when the sale took place and that he did not delay in instituting proceedings to nullify the sale.

In reply to the grounds of appeal, the respondent argued that exhibit A in the Primary D Court clearly showed the price paid for this shamba.

The main point for decision here is whether the appellant was time-barred from instituting E proceedings to nullify this sale. I agree with the District Court that the disputed land is clan land. I also agree with the finding of the District Court that this disputed land was sold at shs. 40,000/= as the document tendered in the Primary Court shows. According to paragraph 568 of Cory and Hartnoll's Customary Law of the Haya Tribe which F book is an authority on the customary law of the Haya Tribe and which book has codified this customary law, there is a time limit for relatives to declare a sale void. This paragraph which is under the heading "Family Tenure" and sub heading "Kibaja - kioruganda" reads:

The only time limit for the institution of proceedings to nullify a sale is that they must be G instituted within 3 months of the date on which the relatives first heard of the sale.
Then we have paragraph 569 which reads: H

An interested relative, who was absent at the time of the sale, is entitled to take action whenever he returns, provided he does not delay doing so more than 3 months after his return.
Finally there is paragraph 561 which reads: I
1983 TLR p140
MUNYERA J

Should the relative concerned not have been informed that a transaction has taken place they A have the right to invalidate the sale by bringing an action against the vendor, who must then return the purchase price he received, or allow the relatives to do so if he cannot find the money.
The question which may be asked again is whether the appellant was time-barred from B instituting these proceedings to nullify the sale. From the record the only evidence on whether or not the appellant was time-barred is that of the appellant himself who said that the shamba in dispute was purchased in December, 1979 and that the appellant was C absent from the village that is why he was late in instituting these proceedings. On the respondent's side we have her evidence in the primary Court to the effect that she bought the disputed shamba on 8/12/1979 and she paid the sum of shs. 40,000/= for it. D She never heard the appellant dispute this sale until only recently in October 1980 when he filed his suit. According to the court record, these proceedings were instituted in the Primary Court on 10/10/1980. The appellant did not say when he first heard of this sale. It is true from the evidence in the Primary court that this sale was made without E reference to the family. The appellant did not elaborate where he was from 8/12/79 to, say, 10/7/1980 i.e. three months before 10/10/80 when he instituted these proceedings. There is nothing to show in the proceedings that the appellant was away from the village for so long i.e. from or just before 8/12/79 to 10/7/1980. What the appellant has said in F his evidence cannot be taken to be evidence for his absence for so long. As such there is no concrete evidence to show that the appellant never heard of this sale from 8/12/79 to 10/7/1980.
There is a note in Cory and Hartnoll's book after paragraph 569 which reads:

A relative who lives who lives in the same village must take action within 3 months of the sale G since it is assumed that he must have heard of it when it took place.
This note just quoted above goes to show how the relative who wants to take action is H presumed to have knowledge of any sale of which he is interested and in order to rebut such presumption one would need to show by strong evidence that he was not in the village for a long time. There is no such evidence here. Indeed there is evidence from the respondent to the contrary. The evidence of the respondent is to the effect that the I appellant heard of the sale but he
1983 TLR p141
did nothing until very late when he decided to file this suit. I agree with the District Court A that the appellant is time-barred from instituting proceedings to nullify the sale of the disputed

land. Since the rule in paragraph 568 of Cory and Hartnoll's book is mandatory, it follows that the appellant cannot be allowed to redeem the disputed land.
Consequently, I dismiss this appeal with costs. B
Appeal dismissed.
1983 TLR p141
C
[zRPz]REPUBLIC v MT. 12153 L/CPL. WAGENYI 1983 TLR 141 (HC)

Court High Court of Tanzania - Mwanza
Judge Mfalila J

October 14, 1983
CRIMINAL REVISION 63 OF 1983 D
Flynote
Criminal Practice and Procedure - Cancellation of bail conditions for smelling of alcohol - Witness remanded in court custody - Example of unjust use of magisterial powers.
-Headnote
The Senior District Magistrate of Mwanza Court upon entering the court room on 3rd E October, 1983, allegedly perceived the smell of alcohol. He subsequently cleared the court room and directed the public prosecutor to find out the source of the smell of alcohol. It was allegedly found out that the accused and one witness named Lt. Matui had taken liquor the previous day. The magistrate found it intolerable to have the F accused and witness reeking of liquor while they knew they were to appear in court that day. He adjourned the court to 10th October, 1983 and ordered the accused be remanded in custody as a penalty and had his bail condition cancelled. In addition the witness was ordered to be remanded in court custody till 12 noon that day. This case G came before the High Court for revision following the complaint of the accused's surety to the Supervisory Magistrate.
Held: The smell of alcohol per se could not be a ground for cancelling the accused's H bail conditions and subsequently remanding him in custody.
Case Information
Order accordingly.
No case referred to. I
1983 TLR p142
MFALILA J
[zJDz]Judgment
Mfalila, J.: I must say this situation is as unusual as it is sad. This is a perfect example A of unjust use of magisterial powers. A witness was remanded in custody and the accused had his bail cancelled because they were smelling of alcohol. This incident happened on 3/10/83. When the learned Senior District Magistrate Mr. Mutaki entered the court B room that morning, he

according to the record, perceived the smell of alcohol. I do not feel sufficiently qualified to make an accurate precis of the proceedings, I will therefore reproduce them verbatim:

3/10/83 C
Coram: E.K. Mutaki SDM
Pros:Insp. William
Accused: Present

P.W.3 Lt. M. Matui, aged 33, Xtian sworn and states: D

Court: Before we proceed, I am feeling smell of liquor in this courtroom and I feel someone either the accused or the witness, the P.P. or the court clerk is smelling liquor. Someone have (sic) took liquor just before he came or late at night. Inspector E William please find out as I cannot conduct a court with drunkards in the courtroom.

Order: All be out of this chamber and the P.P. conduct inquiries outside.
Sgd. E.K. Mutaki SDM F
3/10/1983

P.P. I found out that both Lt. Matui the witness and the accused L/Cpl. Magenyi are smell (sic) liquor. G

Lt. M.F. Matui: I took liquor yesterday at 12 noon.

Accused: I took liquor yesterday at 7 p.m.

Court: I do not accept the explanation from both accused and Lt. M.F. Matui the witness. They must have taken alcohol late at H night while they knew they were to appear to court this time. I do not say they are drunk but they smell liquor a situation which I cannot tolerate.

Order: Hearing adjourned to 10/10/1983. Accused be remanded in custody as a penalty in coming to court with liquor in his brain. Bail condition cancelled till then. I
1983 TLR p143
MFALILA J

The witness Lt. Matui be remanded in court custody till 12 noon and he is warned strongly that A should he repeat this he will be dealt with severely.
Sgd. E.K. Mutaki SDM
3/10/83. B
Following this order the accused's surety complained to the Senior Resident Magistrate in charge and acting in his capacity as Supervisory Magistrate, he accepted the complaint against this order and suspended its operation pending perusal of the record C by this court. He then forwarded the record here for inspection and necessary orders.
I agree with the learned Supervisory Magistrate that the smell of alcohol per se could not be a ground for cancelling the accused's bail. I think the learned Senior District D Magistrate was being too sanctimonious. It would be better and fair if he learned to take into stride such prevalent human weaknesses as alcohol taking. It would have been different if these people had

entered the court room in a drunken state but they were not and this is confirmed by the magistrate's own words in the record. It was not therefore E correct to say as he said in his order that he was cancelling the accused's bail and remanding him in custody "as a penalty in coming to court with liquor in his brain". He had no liquor in his brain, he only had a trace of it in his breath, and in human terms this cannot be sinful.

People wielding any sort of power over others should be careful not to bring in private F and personal idiosyncrasies in public decision making, this would inevitably lead to unjust results as it was in this case. With the hope that the learned Senior District Magistrate will refrain from such actions in future, I quash both his orders he made in respect of Lt. Matui and that cancelling bail of the accused. The bail is restored on its existing G conditions.

H Order accordingly.

1983 TLR p144

A

[zRPz]OMOKE OLOO v WEREMA MAGIRA 1983 TLR 144 (HC)

Court High Court of Tanzania - Mwanza

Judge Munyera J

October 18, 1982

CIVIL APPEAL 43 OF 1981

Flynote

Civil Practice and Procedure - Objections to attachment - Objection suit - Whether only way B open to a claimant of property attached is objection proceedings - Order XXII rr. 57, 58, 59, 60, 61 and 62 Civil Procedure Code.

-Headnote

The appellant sued the respondent for the return of five head of cattle which were seized C at the respondent's instance. The respondent claimed that these were stolen from him by the appellant's son who had already been convicted of stealing a number of head of cattle from the respondent. The appellant brought an objection suit in respect of the D attachment, which was dismissed, the magistrate holding that the only way open to him was to bring objection proceedings under Order XXII rr. 57 and 58.

Held: (i) Order XXII rr. 57,58, 59, 60 and 61 do not provide that the only way open to E a party objecting to an attachment is through the objection proceedings;

(ii) a decision in objection proceedings would not render a subsequent suit on the same dispute res judicata and so a party can decide to bypass objection proceedings and resort to a suit to recover his wrongly seized property. F

Case Information

Appeal allowed.

No case referred to. G

[zJDz]Judgment

Munyera, J.: The appellant was the plaintiff before the District Court of Musoma. He sued the respondent for the return of five head of cattle which were seized at the instance of the respondent. The story was that the appellant's son Otieno Amoke was convicted H of stealing a number of the respondent's cattle. On 19/1/1981 the court, on the application of the respondent, seized the suit cattle. It is not clear from the record of the trial court whether the cattle were seized pursuant to orders in the criminal case or in a civil case. Whatever was the case the appellant filed this suit on 3/2/1981, less than a I month after the seizure. The judgment was delivered

on 15/8/1981 and the appellant's suit was dismissed. Hence this appeal. A

The trial magistrate found, and he was justified, that the appellant's son had his own home and took care of his own problems. The appellant had no legal responsibility for the latter's dark deeds. However the learned trial magistrate dismissed the suit. The reason turned around a point of law. In dismissing the suit he had this to say: B

> ..The only defect being, as pointed out above that the cause of action was based on the wrong premise. The correct avenue is for the plaintiff to file objection proceedings...save as otherwise stated above, the suit stands dismissed. C

In admitting the appeal for hearing my learned brother Chua minuted:

> Admit to consider whether the Resident Magistrate was correct to hold that the only avenue D available to appellant was objection proceedings.

On my part I have been unable to find any authority in support of the trial magistrate's proposition. I could only find provisions for procedure of investigating claims and objections in O.XXII rules 57, 58, 59, 60 and 61. I need not reproduce them here. E Suffice to say it that they don't provide that the only way open to a party objecting to an attachment is through the objection proceedings. I am fortified by rule 62 which provides: F

> Where a claim or an objection is preferred, the party against whom an order is made may institute a suit to establish the right which he claims to the property in dispute, but subject to the result of such suit if any, the order shall be conclusive.

Nothing could be more express than the above provisions. It means that a decision in G objection proceedings would not render a subsequent suit on the same dispute res judicata. This being so a party can decide to bypass objection proceedings and resort to a suit to recover his wrongly seized property. In my opinion the learned trial H magistrate erred in dismissing the suit on that ground. Since he had found that the appellant's cattle ought not to have been seized he had no other choice except to order the return. I allow the appeal, I

set aside the decision of the trial court and give judgment for the appellant. The five head A of cattle to be restored to him. He will also have his costs in both courts.

Appeal allowed.

[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v ELIATOSHA MOSHI AND ANOTHER 1983 TLR 146 (HC)

Court High Court of Tanzania - Mwanza
Judge Mushi J

May 3, 1983
CRIMINAL APPEAL 96 OF 1982 C
Flynote
Labour Law - Oral contract of service - Failure to prepare oral contract of service - S.35 of the Employment Ordinance, Cap. 366.
Labour Law - Wages - Failure to keep record of wages - S.17 of the Terms and Regulation D of Wages Ordinance, Cap. 300.
Labour Law - Wages - Failure to pay statutory minimum wages to employees - S.12 of the Terms and Regulation of Wages Ordinance, Cap. 300.
Labour Law - Workmen's Compensation - Failure to insure against workmen's E compensation liability - S.25 of the Workmen's Compensation Ordinance, Cap. 263.
-Headnote
The respondents were partners running a fleet of taxis. They had engaged the F complainant one Mwinyasumba Mrema as a driver of the taxi on the agreement that his remuneration per day be equal to 20% of every day's collection. The complainant was subsequently fired on 4th August 1980 having worked since 13th February, 1973. On termination a claim for payment of wages in lieu of leave and other terminal benefits was G preferred through JUWATA, the worker's trade union. The respondents apparently refused to pay the claims. They were subsequently variously charged for failure to prepare an oral contract of service c/s 35 (1) (2) and (3) of Cap. 366: failure to keep a record of wages c/s 17(1) of Cap. 300; failure to pay the statutory minimum wages c/s H 12 of Cap. 300 and failure to insure themselves against workmen's compensation liability c/s 25(1) and (2) of Cap. 263. The trial court acquitted the respondents on grounds that no proof had been provided to show that the complainant was an employee within the meaning of the law to impose liability on the respondents. The D.P.P. I subsequently appealed to the High Court.
1983 TLR p147
MUSHI J
Held: the complainant could not be said to have been a workman and was not in a A contract of service with the respondents but was on an agreement for hire.
Case Information
Appeal dismissed.
No case referred to. B
H.J. Ndolezi for the appellant.
[zJDz]Judgment

Mushi, J.: The appellant in this appeal is the Director of Public Prosecutions, who in C short is normally referred to as D.P.P. The respondents are Eliatosha Moshi - 1st respondent and Denis Mrema - 2nd respondent. The respondents were charged with four counts all of which arose from labour laws: On the first count, they were charged with the offence of failing to prepare oral contract of service c/s 35 (1) (2) and (3) of D Cap. 366. On the second count, they were charged with the offence of failure to keep record of wages c/s 17 (1) of Cap. 300. On the third count, they were charged with the offence of failure to insure themselves against workmen's compensation liability c/s 25 (1) (2) of Cap. 263. And on the fourth count the respondents were charged with failure E to pay statutory minimum wages to employees c/s of Cap. 300.

After a full trial in the District Court, the respondents were acquitted on all four counts. On the first count, the learned trial magistrate found that the charge was duplex as it F charged more than one offence in one count. In this view, the respondents were embarrassed. On the second count the trial magistrate found that the prosecution did not establish that the complainant was an employee within the meaning of the law to create the liability on them as charged. On the third count, the learned trial magistrate found that G it was not proved that the complainant was a workman as envisaged under section 2 of Cap. 263, and thus the respondents were not under obligations to insure themselves. And on the fourth count, the trial magistrate found that the count was riddled with duplicity which was incurable. The D.P.P., was seriously aggrieved, he says, by the H decision of the trial court and he has appealed to this court, on several grounds in which he alleges that the learned trial magistrate made an error in his findings. Substantively there are two grounds. The first one, the D.P.P. alleges that the trial magistrate was wrong in holding that there was any duplicity - in count one - and I think in count four as I well and that even if there was such a

duplicity, it did not occasion miscarriage of Justice. Secondly the trial magistrate erred in A holding that the complainant was not an employee in the second count and similarly a workman in the third count.

This appeal has raised very important and complex issues with immense consequences in so far as the labour laws are concerned. But the manner the prosecution was handled at B the trial and even the unsubstantiated arguments in the appeal, have to a large extent hampered exhaustive and thorough examination of the law. We are bound by the record and I shall try to make use of what facts there are to decide the appeal.

There is a basic ingredient in all four counts in the absence of which none of the counts C can survive. And this is whether the complainant was an employee or a worker of the respondents. If the complainant was not an employee or a worker as was found by the trial magistrate, then the whole prosecution case collapses. This is why I requested the D learned State Attorney to argue ground number five first as it is in this ground which is challenging the finding of the trial court that the complainant was not a worker.

Now, what was the evidence before the court? Succinctly the prosecution case is as put by the complainant in his evidence which I quote: E

PW.1: Mwinyisumba Mrema,

I know the accused persons for they had employed me as from 13/2/1973 to 4/8/1980. They had employed me to drive their taxi Rg. No. TDZ 404. The accused employed me to drive their F taxi and we agreed that they should pay me Shs. 300/= per month. We did not sign any agreement, nevertheless they honoured their contract and they used to pay me shs 300/= per month until July, 1980. I was not signing for receipt of my salary; and as such there were no G wage records. The accused persons terminated me in August, 1980 and I complained to JUWATA for the payment of leave and other terminal benefits.

The respondents denied having employed the complainant but agreed to have given him H a taxi to drive on condition that he deducts Shs. 20/= for each shs. 100/= he earned for the hire of the taxi. Let me quote what the first respondent Eliatosha said:

I am a resident of Mwanza Town. I am a businessman owning a fleet of taxis. I am a partner I with the 2nd accused. Originally

we had 6 taxis. In 1980 we had three taxis. All the taxis were being driven by drivers. We had A made a verbal agreement with the drivers to the effect that each driver's remuneration was a percentage of what each collects per day; that is for every Shs. 100/= the driver was to deduct shs 20/=. Each driver was to stay with the taxi at home. There was no other B agreement...sometime in 1974, PW.1 approached me to request to drive one of our taxi for he had been dismissed... We gave him one taxi and explained him that he was being given the taxi on condition that he was paid Shs. 20/= for every Shs. 100/= collected by him. C

The first respondent was supported by the 2nd respondent who categorically denied to have employed the complainant on a monthly wage basis. There was also another defence witness one Kasian Elias. This Kasian told the court that he was one of the D drivers driving the respondent's taxis. He said that he was staying with the taxi and gets Shs. 20/- for each Shs. 100/= he collected from the hire of the taxi. This Kasian told the court that the complainant who was driving one of the respondent's taxis was on similar terms.

The learned trial magistrate carefully examined the evidence before him and after E thorough scrutiny he believed the defence evidence. Thus he came to the conclusion that the complainant was paid on commission basis and that such payment of commission did not amount to a wage or salary as envisaged by law and consequently, he concluded that F the complainant was not a workman within the meaning of section 2 of Cap. 263.

There seems to be unanimity on the correctness of the finding that the complainant's remuneration was on commission basis. The learned State Attorney seems to agree that that could be so. On my part, I am satisfied that the learned trial magistrate was fully G justified on the evidence available to believe the defence evidence and inevitably came to the conclusion that the remuneration was on 20% basis for each Shs. 100/= collected.

The learned State Attorney went further and argued that in whatever manner the H complainant was paid, on commission or otherwise, such payment could not be made unless there was a relationship between the complainant and the respondent and the learned State

Attorney, stated that relationship was none other but a contract of service bringing the case squarely under Section 2 of Cap 263. The section which the learned State Attorney is relying upon reads thus: I

1983 TLR p150

MUSHI J

Workman means any person who has, either before or after the commencement of this A Ordinance, entered into or work under a contract of service of apprenticeship with an employer, whether by way of manual labour, or otherwise, whether the contract is express or implied, is oral or in writing, whether the remuneration is calculated by time or by work done, B and whether by the day, week, month or for any longer period.

The question is whether the agreement between the complainant and respondents amounted to a contract of service with an employer as stated in the section above. Here C is where I stated above that the prosecution starved us and has in a way prevented us from exhaustively and lucidly dealing with important issues raised in this appeal. However from little that I can gather from the evidence; the answer to the above question is clearly in the negative. The agreement between the complainant and the D respondents did not amount to a contract of service between employer and employee. There was certainly an agreement between the complainant and the respondent. What sort of an agreement was it? Was it an agreement for the complainant to render service on one part and the respondents to pay specific amount on the other part? The E complainant told the court that the respondent employed him at an agreed monthly wage.

The trial magistrate found this allegation to be false but found that he was paid commission of Shs. 20/= per each Shs. 100/= earned. How was the work being done? There was evidence which was believed by the court to the effect that the complainant F was given the taxi which he kept at his home. The way I understand this is that the respondents gave the taxi to the complainant to go and use it and whatever income he gets by carrying passengers on hire he should deduct Shs. 20/= for each Shs. 100/=. Put G it in a different way one can say that the complainant was hiring the vehicle from the respondents for use at Shs. 80/= per each Shs. 100/= he gets. How the complainant was to do the work was to be decided by himself. If the complainant did not work and thus earned nothing, he could not go to the respondents and say - look, you fellow I have done my work can I have my wage or salary? To the contrary if the complainant H did not remit anything for a day, the respondents could ask - Look you fellow what is happening? Are you not using the taxi? If you do not want money you had better give it back to me and I shall give it to someone else. The complainant was working independently and was, I think, using the vehicle as if it was his own. Under these I circumstances, the complainant could not be said

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to have been a workman for the respondents and he was not in contract of service with A the respondents but he was on an agreement for hire and used the taxi of the respondents and sharing the proceeds on 80/20 per cent basis. This is enough to dispose of the whole appeal. However, if, I am wrong on this count I uphold the findings of the learned trial magistrate on 1st, 2nd and 4th counts for generally similar reasons as those B given by him. The appeal is dismissed on all counts.

C Appeal dismissed.
1983 TLR p151
D
[zRPz]DIRECTOR OF PUBLIC PROSECUTIONS v YAHAYA UPANGA AND ANOTHER 1983 TLR 151 (HC)

Court High Court of Tanzania - Mwanza
Judge Korosso J

May 19, 1983
CRIMINAL APPEAL 329 OF 1982
Flynote
Criminal Practice and Procedure - Prolonged adjournments of criminal case - Absence of E complainant/public prosecutor - Discharge of accused under section 198 of the Criminal Procedure Code, Cap. 20.
Criminal Practice and Procedure - Power of court to control and regulate own proceedings - Power to grant or refuse adjournment - S. 201 of the Criminal Procedure Code. F
-Headnote
This is an appeal lodged by the Director of Public Prosecutions against the decision of the trial court which acquitted the respondents who had been charged with the offence of stealing by public servant c/ss. 270 and 265 of the Penal Code. The case had over a G period of five months been severally adjourned variously for the absence of the magistrate, the public prosecutor and the witnesses. Ultimately the court dismissed the charge and acquitted the respondents under the provisions of section 198 of the Criminal Procedure Code. H
Held: (i) If under any circumstances the court refuses to grant an adjournment then it may dismiss the charge and discharge the accused in which case the prosecution could subsequently recharge the suspect of the same offence based on identical facts: I

(ii) if the court refuses to adjourn the case after an application for adjournment whether or not the case was ready for hearing on
1983 TLR p152
KOROSSO J
the day on which the refusal is made and if the circumstances of the case are exceptional A the court may invoke its inherent power by dismissing the charge and acquitting the accused.
Case Information
Appeal dismissed.
Cases referred to: B

1. D.P.P. v Kunduchi Sisal Estate, Cr. App. No., 103/1980 (unreported)
2. D.P.P. v Leonard Rugemereza & 7 Others, Cr. App. No. 188/1980 (unreported) C
3. D.P.P. v Martin Nguma & Others, Cr. App. No. 48 & 69 of 1976.

M.M.K. Mtaki for the appellant.

[zJDz]Judgment
Korosso, J.: This an appeal lodged by the director of Public Prosecutions against the D decision of the trial court which acquitted the 1st accused one Yahaya Upanga and the 2nd accused one Zakaria Ngonyani who were charged with the offence of stealing by E person employed in the public service c/ss. 270 and 265 of the Penal Code.
It is convenient that I give a brief history of these proceedings the subject of this appeal. The accused were formally charged before the District court of Mwanza on 27/5/1982. F From then to 24/9/1982, the case had been fixed for hearing on 10/9/1982; 24/9/1982 and on 23/10/82. On 10/9/82 the hearing did not take place because the trial Magistrate was reportedly on safari. The hearing was adjourned to 24/9/82 on which date the witnesses who had attended court on 10/9/82 had been warned to attend court.

On 24/9/1982, the hearing did not take place because the witnesses who had been G bound over to appear did not turn up. The hearing was consequently adjourned to 27/10.1982. On 27/10/1982 the prosecutor is recorded as being absent. The court proceeded to dismiss the charge and acquit the accused under the provisions of section 198 of the Criminal Procedure Code. H
Mr. Mtaki, the State Attorney representing the Republic cited the case of D.P.P. v Kunduchi Sisal Estate, Criminal Appeal No. 103/80 decided by the late Sir Philip Biron then the judge of the High Court and that the same case was followed in the case of D.P.P. v Leonard Rugemereza and 7 Others, Criminal Appeal No. 188/80, I decided by Mr. Justice Chua, (unreported). I have had time to read
1983 TLR p153
KOROSSO J
both judgments. Both appeals involved consideration of the provisions of section 198 of A the Criminal Procedure Code under which the subordinate courts had acted, resulting in the discharge of the accused. In allowing the appeal in D.P.P. v Kunduchi Sisal Estate case His Lordship observed, thus, I quote: B

As I think sufficiently demonstrated the person who failed to appear on 12th May, 1980 when the case was set down for hearing was not the complainant. And further still the case was not dismissed on the first day it was set down for hearing. Therefore section 198 of the Criminal C Procedure Code couldn't have been invoked. I must confess that I find it distasteful particularly on criminal matters to determine a case on pure technicality, but as this case was never heard on its merits which is the proper way a case should be disposed of but dismissed on technicality, I have not the slightest compunction in applying the strict letter of D the law and restoring it on a technicality.
Obviously this case is not relevant to the facts in the case the subject of this appeal as the accused were acquitted under the provisions of section 198 of the Criminal Procedure E Code on the absence of the Public Prosecutor who on the authority of the case of D.P.P. v Martin Nguma and Others was held to be the complainant in all cases in which the Republic is being represented by the State Attorney or the Public Prosecutor.

In the course of writing judgment in the case of D.P.P. v. Leonard Rugemereza and 7 F Others, Criminal Appeal No. 188/80, Mr. Justice Chua referred to the celebrated case of D.P.P. v Martin Nguma and Others, Criminal Appeal Nos, 48 and 69/76 decided by the defunct Court of Appeal of Eastern Africa.

In the case of D.P.P. v Martin Nguma referred to previously supra, the meaning of the G word complainant found in section 198 of the C.P.C. was fully dealt with. It was held that where a person complains directly to the magistrate in a criminal matter then that person is a complainant in that particular case. If, however, the same person goes and complains directly to the police and the police take such a complaint to the Court then H the Republic or the Public Prosecutor representing the Republic becomes the complainant and the victim of the wrong complained of becomes a witness for the purpose of proving the alleged wrong. Undoubtedly Mr. Justice Chua had in mind the real meaning of the word complainant as found in section 198 of the C.P.C. when I dealing with the case of D.P.P. v.

1983 TLR p154

KOROSSO J

Leonard Rugemereza referred to above. He made the following observations. I quote: A

...there is no rule of law that requires that the same prosecutor who appears at the time of fixing a hearing date should appear or conduct the hearing; and surely for purposes of B representation the Republic cannot be said to have been absent solely because the person who was anticipated to conduct the case was absent. The presence of prosecutor Mbulu constituted presence by the Republic. C

On the authority of the celebrated case of Martin Nguma and Others referred to above it is now settled that a Public Prosecutor or a State Attorney or the Director of Public Prosecutions for that matter representing the Republic in any criminal proceedings is the D complainant, and further that the presence of the complainant must be physical presence and not constructive presence. The relevant portion of the Eastern Africa Court of Appeal's Judgment reads thus, I quote:

We think that presence must be physical presence and cannot be constructive presence or E non-presence. the advocate for the appellants would construe appearance to mean physical appearance combined with the ability of the complainant there and then to proceed with the conduct and hearing of the case. We are not satisfied that such an extended meaning can be F put on the words appearance.

Coming now to the instant appeal, I find that the facts in this case are clearly distinguishable and distinct from those obtaining in the case of D.P.P. v Leonard G Rugemereza and Others referred to supra in the judgment. In the instant case the subject of this appeal the public Prosecutor then the statutorily recognised complaint was not physically present in court and nobody appeared to explain or plead for his absence. Conversely, in the case of D.P.P. v Leonard Rugemereza and 7 Others, one Public H Prosecutor was physically present in court. Mr. Mtaki, the State Attorney representing the Republic in this appeal submitted before me that the case was a serious one and so the trial Magistrate should not have very lightly dismissed the charge

and acquitted the accused. He went on to say that it is possible for one public prosecutor to conduct I prosecution before two Magistrates. He stated that the trial Magistrate should
1983 TLR p155
KOROSSO J
have adjourned the case so as to find out what had actually caused the prosecutor's A absence. He concluded by saying that the trial magistrate should have made an effort to look for the prosecutor.
It is common knowledge that at the Mwanza Resident Magistrate's Court there are more Magistrates than one. Invariably the Magistrate in charge of the station prepares a B weekly case list showing cases assigned to each and every Magistrate. These weekly case lists are distributed to the prosecutors. The prosecutor in charge of other prosecutors is responsible for ensuring that there is a sufficient number of prosecutors for assigning to every magistrate. It is also a long established practice for court proceedings C to start at 9.00 a.m. or thereabouts. If the public prosecutor was not physically present in the court at the usual time where was he? If the prosecutor assigned to the trial magistrate had problems why could he not see the trial Magistrate before the court work started? If there were not sufficient number of prosecutors at the station it was the D inescapable duty of the officer in charge of the prosecutors to so inform the trial Magistrate. It is both highly derogatory and ridiculous to expect the trial Magistrate to have gone about chasing and hunting for prosecutors in their offices or in the corridors of the court building. The Magistrate's role is the adjudication of cases and not the E mobilisation of public prosecutors. Court should never allow itself to be placed in a position where it is forced to conduct its court proceedings according to the whims, likes and dislikes of Public Prosecutors. A Public Prosecutor attached to the court is equally an officer of the court, junior to the Magistrate and he must perform his court work F under the superintendence, direction and guidance of the Magistrate and not vice versa.
Referring again to the case of D.P.P v Leonard Rugemereza, Mr. Justice Chua had time to refer to the inherent power of the court on the principle enunciated in the case of G D.P.P.v Martin Nguma and Others. In his judgment Mr. Justice Chua observed thus, I quote:

I agree, however, that a period of over two years is inordinately long to have to prosecute such a case. The remedy, however, is not in acquitting them. The trial Magistrate could have invoked H the inherent power of the court to discharge the accused, but the effect of such an order has been held to have the effect as an order under Section 86 (a) of the C.P.C. in which case the prosecution could bring the same charge the next day. I
1983 TLR p156
KOROSSO J
I fully agree with His Lordship's observation about the court's inherent power that can be A invoked say where after repeated adjournments the court refuses to grant further adjournment. However, I have a feeling that his Lordship has restricted very much the applicability of the court's inherent power. Its applicability is wider than that envisaged in B that judgment. In this respect it is appropriate that I quote the relevant portion of the Court of Appeal's judgment in the case of D.P.P. v Martin Nguma and Others. It reads thus:

The fact that the legislature has empowered the court in terms of section 201 of the C.P.C. to C grant or refuse an adjournment necessarily implies that a court has power and authority to enforce an order, it makes. To hold otherwise would make the power granted to the court meaningless or illusory. A court must within reason have the power to control and regulate its D own proceedings in order to prevent itself from being emasculated or rendered impotent. Some of these regulatory powers derive from a court's inherent power to control its own proceedings which originate from Common law or the very nature of its function not E necessarily from status; such as the power to punish summarily for contempt. We believe that a court can in such circumstances of emergency clothed as it with inherent power to control its own proceedings, dismiss the charge and discharge the accused despite lack of statutory F provisions to that effect. We think that such a discharge and dismissal would be sufficient exercise of the courts inherent power to regulate its own proceedings and that an order of acquittal unless in the most exceptional circumstances is unnecessary and unsuitable for that G purpose. (The underlining is mine). An order of the court in the exercise of its inherent power must be fair and reasonable and in exercising it a court must look at a matter realistically and keep in view and in balance the rights of an accused person and the duty of the prosecution to bring miscreants to justice.

As I see it the quoted passage of Court Appeal's judgment has two sets of rules. The H first rule is that if under any circumstances the court refuses to grant the application for adjournment then it may dismiss the charge and discharge the accused in which case the prosecution could subsequently recharge the suspect of the same offence based on I identical facts. The second rule which I have

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KOROSSO J

emphasized by underlining it is the court refuses to adjourn the case after an application A for adjournment whether or not the case was ready for hearing on that day on which the refusal is made and if the circumstances of the case are exceptional the court may invoke its inherent power by dismissing the charge and acquitting the accused. The court emphasises that the invocation of the inherent power should be resorted to when it is B strictly necessary and desirable, and that it should be exercised judicially.

The question to ask is whether we have in our courts cases which may suitably qualify as being exceptional circumstances. The answer to my knowledge must be an emphatic C "yes". There are hundreds of cases in many of our courts which are of exceptional circumstances. In many courts in this country there are many cases pending for months and even years in the traffic registries, while the unfortunate accused keep on paying frequent pilgrimage to the court. Some of them may only involve the offence of driving D motor vehicle with defective brakes or some minor accidents occasioning damage to the accused's own motor vehicle. There are cases of simple thefts involving hundreds of shillings as well as offences of pick pocketing. There are offences of being found in possession of stolen property or property suspected of being unlawfully obtained. There E are offences of unlawfully being found within the harbour premises; being found in possession of bangi; being a rogue and vagabond. The suspects of these

offences are more often than not destitute persons whom nobody would dare stand surety for. The result being that they are invariably remanded in prison at great government expense. F There should be no justifiable cause for these petty criminal cases to be adjourned for more than three times without the court taking an action by invoking one of these two rules enumerated in the case of D.P.P. v Martin Nguma and Others. Many years since G the inception of post independence legal system in the country the courts have always found themselves in a dilemma in certain very trying and exceptional circumstances mainly for complete absence of an express statutory provision purposely legislated to enable the courts in the country to regulate and effectively control their judicial H proceedings. The courts should henceforth not allow this inexcusable stagnation of the cases filed in court because this is not at all compatible with an administration of justice worthy of a good reputation. The Magistrates, one and all, are urged to carefully review their congested traffic and criminal registries and see if there are cases for which there are exceptional circumstances demanding immediate action by sweeping clean their long I pending cases after prior

caution and warning to the prosecutors. This is particularly desirable bearing in mind the A prevailing obvious notorious fact that our prisons today all over the country are appallingly over-crowded; apparently constituting a potential danger to the lives of the inmates who, after all, are an essential part of our reliable human resources so vital for development in the country. B

With the foregone grounds I feel resolutely inclined to uphold the trial magistrate's order for acquittal.

C Appeal dismissed.

D

[zRPz]KICHELE MRANGE v REPULIC 1983 TLR 158 (HC)

Court HighCourt of Tanzania - Mwanza
Judge Mwaikasu J

March 2, 1983
CRIMINAL APPEAL 261 OF 1982
Flynote
Evidence - Identification of the accused - When identification parade may not be necessary. E
Criminal Practice and Procedure - Order for compensation under the Minimum Sentences Act, 1972 - When trial court overlooks making of such order High Court may rectify.
Criminal Practice and Procedure - Power of High Court to alter finding of lower court - Ss. F 319 and 329 of Criminal Procedure Code, Cap. 20.
-Headnote

The appellant who was appealing against conviction and sentence based his appeal on the ground that the circumstances when the offence is alleged to have been committed G were such that he could not have been properly identified and there was no identification parade to confirm the same. The appellant was one of nine accused persons who were subsequently convicted and sentenced for robbery with violence c/ss. 285 and 286 of the Penal Code, Cap. 16. H

Held: (i) There was evidence that the complainants were not taken by great surprise when the appellants invaded their house for robbery and there was ample opportunity to identify them such that an identification parade could be dispensed with;

(ii) where the trial court overlooks the requirement to order compensation under I the Minimum Sentences Act, 1972 it still has

power to order such compensation at any other later stage either on application of the A owner of the property or on its own motion provided it is done in the presence of the person against whom it is made;

(iii) the appellate court has no power to alter the finding of the trial court to involve the convicting of an accused for an offence with which he was not charged for he B would be denied an opportunity to put forward a defence.

Case Information

Appeal dismissed.

Case referred to: C

Sakila v Republic [1967] E.A. 403

S. Kidela for the respondent.

[zJDz]Judgment

Mwaikasu, J.: This appeal centres on the issue of identification of the accused persons D one of whom was the appellant, as the proper persons who invaded the complaint's home at night, broke into and robbed him of his various properties which were the subject of the charge. E

The appellant, one Kichele s/o Mrange was one of the nine accused persons who stood charged before the lower court with the offence of robbery with violence c/ss.285 and 286 of the Penal Code Cap.16. The appellant was listed as the third accused. They all pleaded not guilty to the charge. However, subsequently the appellant was convicted of F the offence charged alongside with few others. He was sentenced to seven years of imprisonment. Unfortunately the trial magistrate made no order for compensation as required under the Minimum Sentences Act 1972. This however can easily be rectified by this court as empowered under the said Act. G

This appeal is therefore against such conviction and sentence. As stated earlier, the appellant's grounds of appeal are in the main to the effect that the circumstances when the offence is alleged to have been committed were such that he could not have been properly identified, and there was no identification parade to confirm the same. H

A brief account of what took place on the day of the incident will perhaps, enable us appreciate the circumstances under which this offence is alleged to have been committed. The P.W.1, one

Martin Lumanilo is the husband of the P.W.5, one Eliza d/o Petro. On the 25th of August 1980, at about 1.00 a.m. while the P.W.1 and P.W.5 I were asleep in their dwelling house, they heard a big bang on the

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MWAIKASU J

door of their house. It was done with a heavy stone. This awoke them up. The second A bang broke the door and the thieves got the opportunity to enter it. The P.W.1 had by then put on a head lamp and lit the intruders well. The P.W.15 could then identify clearly the 3rd, 6th and 7th accused, the 3rd being the appellant. The accused too had their B own torches. The 6th accused is said to have been holding a gun. Then a fierce dialogue began. The burglars demanded, after firing a shot on the wall, that the P.W.1 should lie down but he refused. This enraged them and it was ordered that he be shot. This was fulfilled by shooting the P.W.1 in the stomach near the waist, after which he fell down. C Believing that the P.W.1 was dead, they began collecting every valuable item from the house all of which amounted to a total value of Shs. 56,100/=; the property of the said Martin Lumanilo, and made away with it. Later the P.W.1 was helped by his neighbours who had responded to the victim's alarm, and received medical treatment at Bugando hospital, and recovered.

Such then were the circumstances surrounding the commission of the offence and the D identification of the appellant.

The learned counsel for the Republic has submitted and I think quite rightly so that the appellant was, though not known to the complainants before, clearly identified as one of the robbers who broke into their house and stole the goods as narrated in the charge E sheet, because at the time the appellant and the other identified co-accused broke into the complainants' house and carried out the robbery there was enough light which enabled the victims to identify them clearly. He therefore supported the lower court's conviction.

I have no reason to differ from such view as I am fully satisfied that there was ample F evidence by the P.W.1 and P.W.5 to implicate the culprits in the offence in question. As testified by the P.W.1 the two witnesses were not taken by great surprise, rather they had steady minds as they got up and prepared themselves to face the trespassers by G having light on. They did, in fact even have some time of arguing with the culprits as the P.W.1 resisted their demand for him to lie down which then cost him a bullet in the stomach.

With such evidence, I cannot but uphold the finding of the lower court as to the guilt of the appellant and dismiss this appeal. The sentence imposed is the minimum prescribed H by law under the Minimum Sentences Act 1972, and there is no reason to disturb it.

Having thus disposed of the appeal, two more questions attracted my attention. One concerns compensation and the other, the offence as charged before the lower court. As I stated earlier, the trial magistrate did not make any order for compensation by the

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MWAIKASU J

accused, including the appellant for the complainants' lost property. This he was duty A bound to do under the Minimum Sentences Act 1972. Having overlooked such requirement on the day

he delivered his judgment he still had the power at any other later stage either on the application of the owner of the property concerned or on its own motion, to order such compensation; provided that such order shall be made in the B presence of the person against whom it is made. That is the provision under s. 7(1) (2) (3) of the said Minimum Sentences Act. 1972. As the appellant did not appear and the other convicted accused have not appealed I exercise my revisional powers in respect of such other accused persons and order that they be summoned before the trial court to C hear about such order for compensation which is hereby required to make.

The final point concerns the offence itself. The accused were charged with and convicted of the offence of robbery with violence only. Yet the evidence established that the D accused broke into the complainants' dwelling house at 1 a.m and thereafter in the same house robbed them of their properties as stated in the charge. This then aroused my attention and I had to ask myself the question. "Was this not a case for burglary as well, c/s 294(1) of the Penal Code?'.

Burglary, as provided for under the above section is, among other things "the breaking E and entering, at night any building... used as a human dwelling with intent to commit a felony therein."

Here the complainants' dwelling house was broken into and entered at night. The accompanying intent behind such burglary was to rob the complainants, and this was F done. So the robbery was committed in such setting, that is the burglary, as the felony for which the accused had intended when they broke into such building. Robbery, is in fact an aggravated theft. Thus, in such circumstances, the accused should have been charged with and convicted of the offences of burglary c/s 294 (1) of the Penal Code, G on the 1st count, and robbery with violence c/ss 285 and 286 of the Penal Code, on the 2nd count, and sentenced accordingly.

However, in considering whether this was fit cause to exercise the powers of this court as provided for under s.319 (1) (a) (ii) and s. 329 (1) (a) of the Criminal Procedure H Code, Cap. 20, so as to alter the finding the lower court and convict the three accused-appellant (3rd accused), 6th and 7th accused, of such offence of burglary, I have come to a settled view that, since the three accused were not charged with such offence before the lower court this court cannot properly exercise such power as provided for under the I

aforementioned sections. This, I think was well considered and settled by this court in A the case of Sakila v Republic [1967] E.A. 403.

In that case the appellant had been charged with and convicted for the offence of defilement of a girl under the age of twelve years c/s 136(1) of the Penal Code, yet in the B course of the trial, the learned trial magistrate found as a fact that the girl was between the age of twelve and thirteen years, so that no offence had been committed. On appeal it was urged by the Republic that the High Court, in the exercise of its appellate jurisdiction, could under the provision of s. 319(1) (a) (ii) of the Criminal Procedure C Code, alter the finding to one of guilty of rape c/s 131 of the Penal Code. Platt, J. as he then was, rejected such a proposition in the following terms:

The purpose of a charge is to inform an accused what it is that he is alleged to have done which contravenes the law. If the prosecution fails to prove that charge, although it might D successfully prove another charge the accused is entitled to be acquitted... In my view it would be unjust to read the words "alter the finding" as being wide enough to enable the court on appeal to alter the finding from guilty of defilement to guilty of rape, since that would involve E convicting the accused of an offence with which he was not charged, and therefore had no opportunity to put forward a defence....

Although it could be argued that the case before his Lordship was one of attempt to F convict a person who had been acquitted of one offence, of another offence for which there had been no provision for an alternative verdict, yet the principle remains that in that case as in the instant case, they had not previously been charged with the other offence of which he could possibly be convicted.

I am the more fortified in such view upon reading the A.I.R Commentaries on "the Code G of Criminal procedure' (1898) of India Vol. 11, at p. 2825 by Chitaleyd Appu Rao, (6th Edn.), where the learned authors, while considering a provision of s. 423(i) (b) of 1898 Indian Criminal Procedure Code, very similar to ours under consideration, put a H very pertinent question thus:

But can an appellate court alter the finding in such a way that the altered offence was neither charged in the trial court nor was one for which the accused could have been convicted under I the provisions of ss. 237 and 238 (which sections provided for alternative verdicts)?

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To such question the answer was the general trend of opinion is that it cannot do so. A

I am satisfied, therefore, that because no charge had been preferred against the three accused in respect of the offence of burglary at any stage in the course of the trial this court does not have the power to alter the finding of the lower court as to find the B accused guilty of the burglary offence. It is, however, hoped that, in future this observation will be noted by all concerned with the institution of criminal charges and the adjudication of cases thereof.

This appeal, therefore is dismissed in its entirety, and it is hereby so ordered. C

Appeal dismissed.

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D

[zRPz]REPUBLIC v THOMAS s/o MUHAJA 1983 TLR 163 (HC)

Court High Court of Tanzania - Mwanza

Judge Mfalila J

November 25, 1983

CRIMINAL REVISION 38 OF 1982

Flynote

Criminal Practice and Procedure - Compounding of offences under section 17 (a), E Business Licensing Act, 1972 and sections 4 and 5 of the Hotel Levy Act, 1972 - Procedure to be followed.

Criminal Practice and Procedure - Internal Revenue Officer compounding offences without following laid down regulations, i.e. admission of the payer in writing - Order unlawful. F
-Headnote
The accused was a businessman at Muleba in Kagera Region. His alleged offences in respect of non-payment of business licence fees under the Business Licensing Act, 1972 and the Hotel Levy Act of the same year were compounded by the Internal Revenue G Officer. The District Court of Muleba District had ordered the accused to pay the fees together with a fine as applied by the Internal Revenue Officer. Upon the accused's failure to make the payment, the District Court referred the issue to the High Court for confirmation of the order or otherwise against the accused, before the District Court H could execute its own order.
Held: (i) both under the Hotel Levy Act, 1972 and the Business Licensing Act 1972, the Commissioner (of Income Tax) is empowered to compound offences committed I under the Regulations, but both Acts give one important condition, namely that the power
1983 TLR p164
MFALILA J
to compound the offences shall only be exercised where the person admits in writing that A he has committed the offence;

(ii) where there is no written admission by the accused or where the liability is disputed, the Commissioner of Income Tax would have no power to compound the offences, he could only take the liable person to court. B
Case Information
Order accordingly.
No case referred to. C
[zJDz]Judgment
Mfalila, J.: It would appear that the accused in this case Thomas Muhaja is a businessman at Muleba in Kagera Region. It is not clear in what kind of business the accused is engaged, but it appears that hotel business is one of these. On 15.8.90 the D Internal Revenue Officer at Muleba made the following communication to the District Court:

I, S. Kimasha, Internal Revenue Officer at Muleba District, Kagera Region, do hereby apply for E a Court Order to payment of Business Licence fees with fine assessable (sic.) to a total amount Shs. 2,256/25 and Hotel Levy shs. 5,785/= by one Thomas Muhaja of Muleba district Minor Settlement.

Under section 17(a) of Act No. 25/72 and section (sic.) 4 and 5 of Hotel Levy Act 1972 the F trader was compounded of the offences under section 20 and 12 of the Acts respectively by the Regional Finance Officer Bukoba on 16/5/80 and 15/5/1989 respectively.

He had promised to cover the same but in vain. I pray your honourable court to summon the G trader and order the same to be paid.
The District Court duly issued the summons as prayed, it is not clear under which H sections of either of the two enactments. The accused duly appeared and upon being questioned he told the district court that he was not prepared to pay the fine imposed by the Regional Finance officer because he did not agree with the amount and he asked for time to enable him to see the

Finance Officer about this problem. When he next I appeared in court he announced that he and the Regional Finance Officer did not come to any amicable
1983 TLR p165
MFALILA J
agreement and he indicated that in the circumstances he would pay the fine imposed by A the authorities, but he asked to be allowed to pay the amount by instalments in view of his other financial commitments. The court allowed him to do this in three monthly instalments. But by May, 1981 the accused still had not paid a single instalment, the B district court on its own referred the issue to this court and that the High Court should confirm or otherwise its order against the accused, before that court executes its own order.
Neither of these two enactments provides for this type of procedure as was adopted by C both the Internal Revenue Officer and the district court at Muleba. Indeed it can be said that the Internal Revenue Officer found himself with this problem because he did not follow the procedure laid down for compounding offences both under the Business Licensing Act and the Hotel Levy Act.
Both under the Hotel Levy Act and the Business Licensing Act the commissioner is empowered to compound offences committed under the Regulations, but both Acts give D one important condition namely that the power to compound the offence shall only be exercised where the person admits in writing that he has committed the offence. In this particular case not only is there no written admission by the accused, but he in fact disputed his liability. In these circumstances the commissioner had no power to E compound the offences. The accused could only be taken to Court.
When this matter was referred here by the District Court of Muleba it was decided to exercise revisional jurisdiction under the provisions of sections 20 (3) of the Business F Licensing Act and 12 (3) of the Hotel Levy Act under which the accused could have successfully appealed against the Commissioner's order.
As the Commissioner purported to compound the offences under those two Act without complying with conditions laid down in those Acts, his orders were unlawful and the G accused was under no obligations to comply with them.
For these reasons the fines imposed by the Commissioner are set aside. The Commissioner can proceed against the accused under other provisions of the Act and the Regulations made thereunder. H
Order accordingly.
1983 TLR p166
A
[zRPz]LAURENCE MPINGA v REPUBLIC 1983 TLR 166 (HC)

Court High Court of Tanzania - Mtwara
Judge Samatta J

June 15, 1983
CRIMINAL APPEAL 16 OF 1980
Flynote
Criminal Practice and Procedure - Appeal against a conviction based on an unequivocal B plea of guilty - Such appeal cannot be sustained - Magistrates Courts Act, 1963, section 16(2) (a) - Appeal against sentence may stand.
Criminal Practice and Procedure - Conviction on plea of guilty - Circumstance on which C appeal may stand.
-Headnote
The appellant in this case was convicted on his "own plea of guilty", of robbery contrary to s. 285 of the Penal Code, Cap. 16. He was alleged to have robbed a school girl, aged 15, of shs. 20/=. He was convicted and sentenced under s.5(b) of the Minimum D Sentences Act, 1972 to seven years' imprisonment. This is a second appeal after his first appeal from the Primary Court to the District Court was dismissed.
Held: (i) An appeal against a conviction based on an unequivocal plea of guilty generally E cannot be sustained, although an appeal against sentence may stand;

(ii) an accused person who has been convicted by any court of an offence "on his own plea of guilty" may appeal against the conviction to a higher court on any of the following grounds: F

1. that, even taking into consideration the admitted facts, his plea was imperfect, ambiguous or unfinished and, for that reason, the lower court erred in law in treating it as a plea of guilty;
2. that he pleaded guilty as a result of mistake or misapprehension;
3. that the charge laid at his door disclosed no offence known to law; and G
4. that upon the admitted facts he could not in law have been convicted of the offence charged.

Case Information
Order accordingly. H
Cases referred to:

1. R. v London Quarter Sessions [1957] 3 All E.R. 28
2. Regina v Waziri s/o Musa, 2 T.L.R. (R) 30. I

1983 TLR p167
SAMATTA J
M. Sengwaji for the respondent. A
[zJDz]Judgment
Samatta, J.: This appeal reminds me of the question which Lord Goddard, C.J., posed in R.v. London Quarter Sessions [1957] 3 All E.R. 28 at p. 31: "How can a person who pleads guilty deliberately be aggrieved by a conviction?." B
The appellant in the case now before me, Laurence Mpinga, was convicted, upon "his own plea of guilty", of robbery, contrary to s. 285 of the Penal Code, by the Primary Court of Chikundi.

He was alleged to have robbed a school-girl, aged 15, of Shs. 20/=. When the charge was read over and explained to him his plea was: C

It is true I robbed her shs 20/= by using violence.

This was entered by the court as a plea of guilty to the charge. In accordance with the procedure outlined by Mahon, J. (as he then was) in Regina v Waziri s/o Musa, D 2 T.L.R. (R) 30, at p.31, the facts of the case were then outlined by the complainant, Fatu Hashimu. These revealed that the appellant had pounced upon the young girl and dragged her for some distance before taking away, by force, her currency note of twenty shillings. When the appellant was asked to say whether or not the given outline of facts E was correct he answered as follows:

What the complainant has said is nothing but the truth. F

Upon the strength of his plea and this reply the court convicted the appellant as charged, i.e. of robbery, and it then proceeded to sentence him, under s.5(b) of the Minimum Sentences Act, 1972 to a term of seven years' imprisonment. The appellant appealed against the (whole) decision to the District Court of Masasi district, without any success. G He still says that he should not have been convicted; hence the present appeal. In his petition of appeal the appellant asserts that the complainant (i.e. the young girl) is his close relative and that he has been her guardian since she was aged two. According to the appellant, the young girl was a truant and he took away the shs. 20/= from her with a H view of correcting her behaviour and forcing her to go back to school.

Section 16 of the Magistrates' Courts Act, 1963, provides for appeals from Primary Courts to District Courts but subsection (2) (a) thereof lays down that: I

No appeal shall be allowed in any case of an accused person convicted on his own plea of A guilty, except against sentence or an order for the payment of compensation.

If the appellant had in fact and in law pleaded guilty to the charge of robbery, then he B could not be heard in the District Court to complain against his conviction. I say in fact and in law because, as I apprehend the law, an accused person who has been convicted by any court of an offence "on his own plea of guilty" may in certain circumstances appeal against the conviction to a higher court. Such an accused person may challenge C the conviction on any of the following grounds:

1. that, even taking into consideration the admitted facts, his plea was imperfect, ambiguous or unfinished and, for that reason, the lower court erred in law in treating it D as a plea of guilty;
2. that he pleaded guilty as a result of mistake or misapprehension;
3. that the charge laid at his door disclosed no offence known to law; and, E
4. that upon the admitted facts he could not in law have been convicted of the offence charged.

Although he does not expressly say so, the appellant in the instant case suggests that he F pleaded guilty to the charge of robbery as a result of mistake or misapprehension on his part. It is a correct proposition of law, of course, the validity of which it is neither possible nor safe to

dispute, that there cannot be an offence of robbery unless theft has taken place, and that for theft to be proved it must be demonstrated or unequivocally G admitted that there was a fraudulent taking or conversion - a tortious taking or conversion being insufficient. It is also a correct proposition of law, I think, to say that the defence of bona fide claim of right, provided for in s.9 of the Penal Code, applies to the offence of robbery, too. It is not necessary, to establish a bona fide claim of right in H the case of robbery, for the accused to satisfy the court that he had the honest belief that he had the right to take the property in the way in which he did. If, as the appellant now asserts, he used force against Fatu with the intention of correcting her behaviour and not for the purpose of stealing, neither lawyer nor a layman would, I think, describe I that conduct as amounting to stealing. But is that what happened? I think not. I

cannot see how, if the appellant's assertion were true, he, as sane person and an adult, A could possibly have spoken to the court under a misapprehension as to the nature and gravity of the accusation preferred against him. In my settled view, the appellant pleaded, and intended to plead, guilty to the charge. What, I ask, was the difficulty in pointing out to the Primary Court, a tribunal whose atmosphere is, comparatively speaking, fairly B informal and simple, that he did not intend to steal the shs. 20/=? I get no answer. The appeal against conviction is plainly a shot in the dark; it is probably a product of an advice from a barefoot "lawyer", whom the appellant must have met in prison. In my view the District Court erred in law in entertaining the appellant's appeal against C conviction. That appeal was incompetent in law, and should, therefore, have been struck out.

The appeal against sentence is competent in law, and I proceed, therefore, to consider it. D Mr. Sengwaji, counsel for the Republic, having drawn my attention to two facts: (1) that the appellant is a first offender, and (2) that the money which was obtained in the course of the perpetration of the robbery did not exceed one hundred shillings, urged me to say that the Primary Court could, and should, have held that this was a proper case in E which to invoke the merciful provisions of s. 6 of the Minimum Sentences Act, 1972, and should have proceeded to deal with the appellant as if the Act had not been enacted. With respect, I am inclined to think that there is some merit in the argument. Bearing in mind, among other things, that the appellant had pleaded guilty, I think this is a F case where justice ought to have been tempered with mercy. This is what I propose now to do. Taking into consideration all the competing factors, I think a sentence of four years' imprisonment would have adequately reflected the society's revulsion against the appellant's antisocial conduct. The sentence of seven years' imprisonment is reduced accordingly. G

I have sufficiently demonstrated, I hope, why the purported appeal against conviction must be, and is, struck out, and why the appeal against sentences is allowed to the extent herein indicated.

H Order accordingly.

[zRPz]ERNEST JOSEPH NYATANDO v REPUBLIC 1983 TLR 170 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mnzavas JK

July 27, 1984
CRIMINAL APPEAL 101 OF 1981 B
Flynote
Evidence - Witness cannot be prosecuted on the basis of incriminating evidence he gives (s. 141 Evidence Act 1967).
Criminal Law - Punishments - A person detained under the Preventive Detention Act, 1962, C Cap. 490 - Whether already punished by virtue of s.21 Penal Code, Cap. 16.
-Headnote
The appellant was convicted of stealing by public servant and being in unlawful possession of offensive weapons c/s 265 and 270 of the Penal Code and c/s 8 (1) of the National Security Act, 1970. After conviction the trial court was of the opinion that a D greater punishment should be inflicted for the offences than the court had power to inflict and it accordingly committed the appellant to the High Court for sentence. Dissatisfied by the finding and order of the lower court the appellant appealed to the high Court. E
Held: (i) Where a witness incriminates himself when giving evidence for the prosecution he becomes immune by virtue of s. 141 of the Evidence Act, 1967 from being prosecuted on the basis of the evidence he gives;
(ii) By virtue of section 21 of the Penal Code, it is unlawful for any court to F punish the appellant twice for the same offence; therefore a person being punished by being detained under the Preventive Detention Act (Cap. 490), cannot be punished a second time by a court of law in respect of the same offence. G
Case Information
Order accordingly.
No case referred to:
Ballonzi for the appellant. H
Chiza for the respondent.
[zJDz]Judgment
Mnzavas, J.K.: In Kisutu RM's Court Criminal Case No. 868/1979 the Appellant, Ernest Joseph Nyatando, was convicted of stealing by Public Servant and being in I unlawful possession of offensive weapons c/s 265 and 270 of the Penal Code
1983 TLR p171
MNZAVAS JK
and c/s 8(1) National Security Act, 1970. After conviction the trial court was, taking into A account the nature of the offences, of the opinion that a greater punishment should be inflicted for the offences than the court had power to inflict and it accordingly invoked its powers under

section 5A of the Criminal Procedure Code and committed the appellant to this Court for sentence. B

Dissatisfied by the finding and order of the lower court the appellant has appealed to this Court. Arguing against the finding and order of the lower Court Mr. Ballonzi learned counsel for the appellant, submitted that the trial court erred in believing the evidence in support of the prosecution case, which evidence, it was argued, was full of C contradictions. It was the learned counsel's submission that the lower court erred in not accepting appellant's defence which, it was argued, was cogent and without contradictions.

It was also the defence argument that the decision to prosecute the appellant was contrary to the provisions of section 141 of the Evidence Act, 1967. It was submitted D that the appellant having been a witness for the prosecution was under section 141 of the Evidence Act immune from prosecution in connection with the same case.

Finally Mr. Ballonzi argued that the appellant is detained under the Preventive Detention E Act - Cap 490 of the laws for the same offences and that as such it would, it was argued, be illegal for the Court to punish him again for the same offence. In support of this argument the Court was referred to section 21 of the Penal Code.

In rebuttal Mr. Chiza, learned state attorney, argued that the decision of the lower F court was based on the credibility of the witnesses and the trial court was in a better position to assess the credibility of the witnesses than this court.

As for the argument that Biron, J. had no power to order that the appellant (who had given evidence for the prosecution) be charged with the same offences the learned G state attorney was of the view that the learned Judge had such power. In support of his argument the Court was referred to section 322 of the Criminal Procedure Code. The learned state attorney however concurred with the defence argument that under the provisions of section 21 of the Penal Code, the appellant cannot be punished again for H the same offence bearing in mind that he has already been punished by being put in detention. I would first like to deal with the argument that my learned brother Biron J, had no power to order that the appellant be charged with the same offence in which he had given evidence as a prosecution witness. I

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MNZAVAS JK

The answer to this question is found under section 141 of the Evidence Act, 1967 which A says:

> A witness shall not be excused from answering any question as to any matter relevant to the matter in issue in any suit or in any civil or criminal proceeding, upon the ground that the B answer to question will incriminate... such witness... Provided that no such answer, which a witness shall be compelled to give, shall subject him to any arrest or prosecution, or be proved against him in any subsequent criminal proceeding except a prosecution for giving false evidence by such answer. C

It is amply clear from the decision of Biron J, that the appellant had incriminated himself when giving evidence for the prosecution. Having incriminated himself when giving evidence I tend to agree with the learned defence counsel's argument that the appellant D was, under the

provision of section 141 of the Evidence Act quoted above, immune from prosecution. But as I have no power to undo the decision of Biron, J. I leave the matter at that.

Coming to the question of conviction by the lower court it is my view that apart from the E provisions of section 141 of the Evidence Act, there was ample evidence in support of the lower court's finding of guilty.

As for the question of sentence it is not all in dispute that the appellant, Ernest Joseph Nyatando, is in detention (under the Preventive Detention Act) for the same offences. F

Section 21 of the Penal Code says:

A person shall not be punished twice, either under the provisions of this Code or under the G provisions of any other law for the same offence.

That being the statutory law I agree with the defence argument that it will be unlawful for this Court to punish the appellant twice for the same offence. Apparently, and as I have H already mentioned above, the learned state attorney concedes that it would be contrary to the law for this Court to impose another sentence on the accused for the same offence.

I am, under the provisions of s.21 of the Penal Code, unable to impose any other sentence on the appellant. I

Order accordingly.

1983 TLR p173

A

[zRPz]MWITA MAGORE v REPUBLIC 1983 TLR 173 (HC)

Court High Court of Tanzania - Mwanza

Judge Munyera, J

October 28, 1983

CRIMINAL APPEAL 139 OF 1983

Flynote

Criminal Practice and Procedure - Charge of robbery c/s 285 of Penal Code, Cap 16 - B Whether causing grievous harm is cognate minor offence to robbery, and can therefore be substituted for robbery.

Criminal Law - Meaning of minor cognate offence - One that forms part of a series of lesser offences necessary to complete major offence. C

-Headnote

The appellant was charged with robbery following an allegation that he assaulted one Joseph Nchagwa (PW) with a panga and made away with shs. 12,000/= and an ignition D key found in the complainant's pockets. The learned trial magistrate found that the violence perpetrated upon the complainant was not for the purpose of stealing, and acquitted the appellant of robbery and convicted him of causing grievous harm c/s 225 of the Penal Code, Cap. 16. The question before the appeal was whether conviction of E causing grievous harm could be substituted for robbery.

Held: (i) Conviction of causing grievous harm cannot be substituted for robbery for the simple reason that causing grievous harm is not a cognate minor offence to robbery; F

(ii) a cognate minor offence is the one that forms part of a series of lesser offences which must be committed in order to complete the major one. Thus in order to commit robbery one must commit two minor offences, assault and stealing;

(iii) when a person is tried for robbery, assault and stealing are necessarily the G subject of the trial and it shall not be unlawful to substitute conviction of either of them for robbery;

(iv) causing grievous harm is not a cognate minor offence to robbery and must be specifically charged, to substitute grievous harm for robbery is bad in law. H

Case Information

Order accordingly.

No case referred to. I

1983 TLR p174

MUNYERA J

[zJDz]Judgment

Munyera, J.: The appellant was the second accused before Tarime District Court. He A was charged jointly with another (1st accused) for robbery. It was stated that on 27/10/82 the complainant, one Joseph Nchagwa (PW1); was returning to his village Kwitinyo, from a cattle auction. He was driving his Toyota Pick -up MZF 124. He B passed by his shamba. He saw a herd of cattle grazing in the shamba. He parked his vehicle somewhere. He approached the herdsmen who happened to be the appellant and his co-accused. He protested to them that their cattle were destroying his crops. The two men, armed with pangas, rushed at him. The first accused, with the aid of the C appellant cut the complainant with a panga on his back. The latter fell down. The appellant put his hand in the complainant's pockets and made away with Shs. 12,000/= cash and the ignition key. A passer-by, Mchuma Mwita (PW 3) helped the injured complainant. Finally the appellant (and his co-accused) was arrested and charged. In his D defence he (like his co-accused) denied that he assaulted and robbed the complainant. The learned trial magistrate found that the violence perpetrated on the complainant was not for the purpose of stealing. He acquitted both of them of robbery but convicted them of causing grievous harm c/s 225. He sentenced the appellant to 2 years' imprisonment, E and released his co-accused on a 3 year probation. Both of them were ordered to pay compensation of Shs. 500/= each to the complainant. Hence this appeal.

There was ample evidence to establish that it was the appellant (and his co-accused) F who injured the complainant. The question is whether conviction of causing grievous harm could be substituted for robbery. Without beating about the bush I would say such a substitution is not possible for the simple reason that causing grievous harm is not a cognate minor offence to robbery. A cognate minor offence is the one that forms part of G a series of lesser offences which must be committed in order to complete the major one. Thus in order to commit robbery one must commit two minor offences, assault and stealing. So when a person is tried for robbery assault and stealing are necessarily the subject of the trial and it shall not be unlawful to substitute conviction of either of them H for robbery. But one does not have to cause grievous

harm in order to commit robbery. It is not a cognate minor offence to robbery and must be specifically charged. In this case it was not included in the charge and was not the subject of the trial. The appellant was unaware of it and its substitution was bad in law. I set aside the conviction of I grievous
1983 TLR p175
harm and substitute therefore the one of assault c/s 240. I set aside the sentence of 2 A years and substitute therefore the one of 9 months' imprisonment.
The appeal against sentence succeeds to the above extent.
B Order accordingly.
1983 TLR p175
C
[zRPz]MERALI HIRJI AND SONS v GENERAL TYRE (E.A.) LTD 1983 TLR 175 (HC)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Nyalali CJ, Makame JJA and Kisanga JJA

April 27, 1984
CIVIL APPEAL 24 OF 1983
Flynote
Contract - Formation - Agreement made verbally - Arrangement lasted for five years - D Whether valid contract.
Contract - Agency - Agent incurs expenses to run the business - Nature of agency.
Contract - Agreement carries no terms - Duty of the Court.
Contract - Agency - Contract carries no terms - Termination - Whether court to imply E reasonable notice of termination.
-Headnote
The appellant company was appointed the sole dealer in selling and distributing the respondent company's tyres and tubes in Rugwe and Kyela districts. The appellant used F to buy the goods from the respondent at a 15% discount and transport them to his premises. The appellant dealt in the respondent's goods only. Five years later the respondent unilaterally terminated the five-year-old commercial relationship without notice and without assigning any reason for doing so. G
The whole arrangement was made verbally. The High Court held that the arrangement was one of agency, that the respondent was not obliged to give any notice for terminating the agency and therefore that there had been no breach. On appeal it was argued in favour of the appellant that given the nature of the relationship between the H parties and the appellant's commercial dealings the court should have imported reasonable terms into the contract and held that a reasonable notice was necessary to terminate the relationship.
Held: (i) There was a valid contract between the parties proved by their conduct over I the years:

(ii) the contract was one of agency; A

(iii) given the nature of the relationship in this case the appellant was not a commission agent, as such was entitled to a reasonable notice of termination of the contract;

(iv) since the contract did not provide for terms the court had a duty to imply reasonable terms; B

(v) the respondent was legally obliged to give notice;

(vi) given the circumstances of the case six months' notice is reasonable and justified.

Case Information

Appeal allowed. C

Cases referred to:

1. Martin-Baker Aircraft Co.Ltd. and Another v Canadian Flight Equipment, Ltd. [1955] 2 All E.R. 722.

2. Motion v Michaud (7) (1892) S.T.L.R. 253 D

M.A. Lakha, for the appellant.

R.J. Rweyemamu, for the respondent.

[zJDz]Judgment

Makame, J.A. read the following considered judgment of the court: Sometime in 1975 E the appellant company was appointed the sole dealer in selling and distributing the respondent company's tyres and tubes in the Rungwe and Kyela Districts after one C.V. Patel had ceased to function as such. The appellant would purchase the said goods on F cash at a 15% discount, and collect them himself from the respondent company's premises in Mbeya Township. His assertion that he was to sell the tyres and tubes of only the respondent company, and that he was the only one permitted to do so in the two district, was not controverted in evidence. G

By a letter dated 15th August, 1980, the respondent company unilaterally terminated the five-year old commercial relationship, without any prior notice and, apparently, without providing any reason for doing so. The appellant felt that the respondent company's H action was high-handed and unreasonable, that the said action had caused him loss of profit, and that gave him a right to damages. The appellant accordingly sued in the High Court for Shs. 150,000/= damages, contending that could cover a reasonable notice, for six months, at the rate of shs. 25,000/= per month. Mr. Lakha, learned advocate, appeared for the appellant in this appeal before us, as he did also in the court below. At I the original hearing the respondent company

was represented by Mr. Rweyemamu, learned counsel from the Tanzania Legal A corporation, who appeared also before us.

It was common ground that the communication giving rise to the alleged relationship between the parties was merely verbal. It was the appellant's case that, that notwithstanding, what was thereby formed was a valid contract proved by the conduct B of the parties over the year. Admittedly no specific provision was made for circumstances which would entitle either party

to terminate the contract or for the necessary length of notice in the event. In such a case, Mr. Lakha maintained, the court had to import reasonable terms: in the instant case he reckoned that six months' notice C would have been reasonable.

Mr. Rweyemamu for the respondent company argued that the arrangement was ad hoc, that no contract was in fact entered into, and so there was no obligation to issue the alleged or any notice.

Mr. Msaky, the only witness for the respondent company, told the trial court that his D company did not normally give notice to their dealers when the company wanted to terminate a dealership; there were simply no rules.

The learned Jaji Kiongozi who tried the suit was satisfied that "there was some understanding between the parties regarding selling of tyres of the defendant in Mbeya E (sic) and Kyela Districts" and went on, further, to hold that there was an irresistible inference that the appellant was the respondent company's agent in Tukuyu (sic). We respectfully agree that the appellant was the respondent company's agent as alleged, and we did not permit Mr. Rweyemamu to endeavour to persuade us otherwise, because F there was no cross-appeal on the issue.

Having found that the appellant was the respondent company's agent the learned Jaji Kiongozi was nonetheless of the view that the respondent company was not obliged to G give any notice terminating the agency, and therefore there had been no breach. The learned Jaji Kiongozi referred to some authorities, chiefly the case of Martin-Baker Aircraft Co. Ltd And Another v Canadian Flight Equipment Ltd [1955] 2 all E.R. 722. He was of the view that because there was allegedly no Master and Servant H relationship in the present case, and, as unlike in Martin Baker's case, there was herein not "the highest degree of mutual trust and confidence between the parties", there was no need for a notice. The learned Jaji Kiongozi referred to two other authorities, Birtley's and Bellshill's cases, and said that the decision in Bellshill's case overruled those in I Birtley and Martin-Baker. With great respect, we have grave doubt as to the

relevance of Bellshill's case, and it is clearly incorrect to assert that Bellshill had A over-ruled Martin-Baker. Martin-Baker is not mentioned even in passing in Bellshill's case.

We have had to look at Martin-Baker's case closely to get the kernel from the husks. We do not read the case the way the learned Jaji Kiongozi appears to have done. The B rival contentions in Martin-Baker were different from those in the present case. In Martin-Baker a great deal of discussion was spent on whether the relationship was permanent. i.e. terminable only by mutual consent, or whether it could be terminated by party on reasonable notice to the other. That is where reference was made to high C degree of mutual trust or a relationship akin to Master and Servant, the argument emerging therefrom being that, if there was some such relationship, involving a high degree of mutual trust etc, it would be unreasonable to hold that the relationship is permanent; continuing to be binding despite the breach of trust etc. Such a relationship D would be terminable by either party. Our present problem is different: It is not whether it would be permanent or terminable by one of the parties but rather, whether is determinable at will and without notice at all, or whether it can only be terminated with E

reasonable notice and, if it is the latter, what is reasonable notice. The slant is thus different and it is when one appreciates that, that one really understands Mr. Lakha's complaint that the case law used was misapplied.

The facts in the present case are also different from Motion v Michaud (7) 1892 S.T.L.R. 253, which concerned an independent merchant who undertook to sell the F defendant's brandies, like he had been selling other people's wines and champagne, on a commission basis. He got the consignments of brandy without paying for them and was getting his cut after the sales. He was only involved the office expenses.

In the present case the appellant was expending his own cash to buy the goods, he G collected them himself from Mbeya, transported them to his shop, and the evidence was that he had an outfit for selling the respondent's goods. He was not a commission agent who had virtually no risk and who did not have to tie up his capital. What he got was a H discount on the cash payment, not a commission for only whatever he sold. One has to look at the particular facts and circumstances of each case. In the present case the appellant had geared himself to selling only the respondent company's tyres and tubes and to selling them alone, without competitors. All of a sudden he would get no more I supplies, was no more a dealer for the respondent company and, obviously, if he was inclined to secure

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another tyre and tube agency, it would take him time and effort, and possibly some A resources, to cultivate one. It is quite true that, as McNair, J. said in Martin - Baker, it is not the function of the court to make a reasonable contract between the parties but, as the learned judge also observed, and with him we respectfully agree, it is the duty of the court to imply reasonable terms. It is our considered view that in the present case the B respondent was legally obliged to give notice and that, on the evidence, the learned Jaji Kiongozi should have so held. Mr. Rweyemamu for the respondent, eventually conceded as much, but he urged that one-month notice would have been reasonable and enough. In our view the six months' notice the appellant asked for is reasonable and C justified in the circumstances. We accordingly allow the appeal to that extent, with costs, here and in the court below.

Regarding the quantum of damages, we are at a disadvantage. We would naturally need D data for this, and what Mr. lakha furnished us with cannot take us far enough. He has included in the record before us the respondent's sales documents for only August 1980, the last month the parties transacted business with each other immediately before the termination. We are aware that at the High Court a lot more documents were produced E and we trust that the present omission by Mr. Lakha was merely fortuitous and not by design. The trend of sales between the parties over the whole tract of time the parties did business together would tell the story better when it comes to assessing the damages. For that reason we remit that aspect of the suit back to the learned Jaji Kiongozi for F assessing the quantum of damages and awarding the same accordingly.

G Appeal allowed

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H

[zRPz]MAKUNGIRE MTANI v REPUBLIC 1983 TLR 179 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam
Judge Nyalali CJ, Makame JJA and Kisanga JJA

May 8, 1984
CRIMINAL APPEAL 16 OF 1983
Flynote
Evidence - Circumstantial - Mysterious disappearance of deceased from company of appellant - Silence of appellant - Blood stains of deceased's group found on appellant's I cloth - Incriminating circumstances on a murder charge.
1983 TLR p180
KISANGA JA
-Headnote
The appellant and one other person (Mzungu Bituro) were jointly charged with the A murder of the deceased in this case. Mzungu, however, died in remand before the hearing started, and so the trial proceeded in respect of the appellant alone. The appellant was convicted as charged and sentenced to death.
The appellant's advocate contends among other things that the prosecution evidence was B highly circumstantial to support a conviction and that the learned trial judge misdirected himself as to the burden of proof.
Held: (i) In the circumstances of the present case there was more than considerable C suspicion against the appellant, for he refused to give an explanation of how the deceased mysteriously disappeared from his compound;

(ii) we think that the evidence of the appellant's clothes bearing blood stains of D the same blood group as the deceased but different from his own was an incriminating circumstance which was properly taken into account in establishing the appellant's guilt.
Case Information
Appeal dismissed. E
Case referred to:
Kimweri v R. [1968] E.A. 252
R.W.G. Rugarabamu for the Appellant. F
[zJDz]Judgment
Kisanga, J.A., read the following considered judgment of the court: The appellant and one other person (Mzungu Bituro) were jointly charged with the murder of the deceased in this case. Mzungu, however, died in remand before the hearing started, and so the trial G proceeded in respect of the appellant alone. The appellant was convicted as charged and sentenced to death, but he is now appealing.
The appellant and his co-accused together with the deceased worked in a slaughter house where they skinned the carcasses and took the meat to the butchery. They also H lived in one house,

the deceased being the one who secured the premises and then invited his colleagues to live with him there. In the evenings they used to go out together for drinks, leaving home around 6 p.m and returning at about 8 p.m. They drank the illicit liquor popularly known as "Moshi". Sometime during their staying and working together I some misunderstanding arose whereby the deceased threatened to expel

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KISANGA JA

the appellant and Mzungu from the house, followed by a refusal by these two to leave A the premises with a counter threat to "teach the deceased a lesson". However, Sadiki Iddi (P.W.2) who also lived in the same house intervened by asking the deceased to take it easy, so to speak, and allow the appellant and Mzungu to continue to live there. This appears to have settled the matter, and life appeared to be normal again. B

However, only about three days later the appellant and Mzungu together with the deceased left home together at about 6 p.m., as usual, but returned at 8.p.m without the deceased. When P.W.2 inquired as to the whereabouts of the deceased, the appellant C and Mzungu were rude and evasive. They retorted by asking the witness in what capacity he was asking them that question. And when the witness told them that he asked that question because the deceased was their host, they simply kept quiet, went into their room, closed the door and went to sleep. When the deceased's absence at D work was noticed, the appellant and Mzungu were asked about his whereabouts but they said nothing, in fact P.W.2 thought that the appellant and Mzungu were unusually quiet that day. The deceased was found dead some three days following the evening when he went out in company of the appellant and Mzungu. His body was found lying in E a potato field with injuries on the head and legs. The appellant did not come to the scene but Mzungu did, and when he was asked why he had not reported the absence of the deceased, his fellow tenant, he took to his heels. When later the appellant was arrested at the market place he was desperate, and when he was asked he replied that F he was so desperate because he had expected to be arrested at any time. On the day the appellant and Mzungu went out last with the deceased these two wore clothes which were later found to have stains of human blood belonging to the same group as that of the deceased (AB), but different from that of their own which is "O" for the appellant G and "A" for Mzungu. At the trial the appellant chose to keep quiet in his defence, and the learned trial judge, after due review of the evidence before him, found the case proved and accordingly convicted him.

Before us the appellant was represented by Mr.R.W.G. Rugarabamu who had also H conducted the defence in the high Court. The learned counsel filed and argued for grounds of appeal. The first ground states that "The prosecution evidence was highly circumstantial to support a conviction". Enlarging upon this, counsel submitted in effect that the evidence adduced before the court was such as did cast considerable suspicion I only, but not sufficient to

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KISANGA JA

support a conviction. In support of this view he cited the case of Kimweri v R. [1968] A E.A. 252. We have given due consideration to the submission by the learned counsel but we are not

persuaded by it. We think that in the present case there was more than considerable suspicion against the appellant. The deceased was last seen alive in the B company of the appellant and his co-accused, now deceased. The appellant refused to give any explanation of how the deceased mysteriously disappeared from his company. If the appellant had nothing to do with the death of the deceased, one would certainly expect him to say at what point he parted company with the deceased that night after C having set out from home together. But to keep quiet in those circumstances was most strange. Mr. Rugarabamu suggested that the appellant's silence that night might be explained on the basis that appellant was drunk when he returned home that night. We cannot accept such view. There was no evidence of drunkenness. The only evidence on D this issue was to the effect that the trio used to go out together to drink and that they drank "Moshi". But this alone is not sufficient from which to conclude that on this particular night the appellant, in fact, drank "Moshi" and that in fact he returned home drunk. He may have had no drink at all or, if he had some, he may not have been drunk. E Assuming that the appellant had a drink that night, if he had enough senses to be able to find his way back home, it is inconceivable that he would not be in enough senses to say how he parted company with the deceased. We think that there is nothing on the evidence to support the view that the appellant was drunk that night. F

Mr. Rugarabamu further contended that the appellant's silence, when he was asked at his work place about the deceased's disappearance, could be explained on the basis that the appellant was perplexed. With due respect to the learned counsel, this is G incomprehensible. If he was perplexed but innocent, this was all the more reason for him to disclose how he parted company with the deceased so that appropriate steps could be taken to trace the deceased and thus solve the mystery surrounding his disappearance which was the source of the perplexity. We think that on both these occasions one H would certainly expect the appellant to give an explanation how he parted company with the deceased after he had set out from home with him that evening. It is most odd, however, that he did not.

Then there is the evidence that at the time of his arrest the appellant was desperate and I that, when asked, he replied that he was so desperate because he had expected to be arrested. According

to Mr. Rugarabamu, the appellant expected to be arrested because his colleague, A Mzungu, had been arrested. If the appellant was innocent, why should he think that Mzungu's arrest would automatically lead to his own arrest? One would expect him to be ready to explain his innocence to the police and thus clear himself, but it is most strange that in those circumstances Mzungu's arrest should make him desperate and B cause him to anticipate arrest. Such conduct cannot be said to be consistent with his innocence.

Then there was the evidence that the clothes worn by the appellant on the material night had stains of blood belonging to the same group as that of the deceased but different C from that of his own. Dealing with this aspect of the evidence, the learned trial judge in the course of his judgment stated.

The conclusion thus reached was that the T-shirt worn by the accused at the relevant D time not only had blood stains, but they were human blood of group AB i.e. the deceased's group. The accused was thus effectively linked to the killing of the deceased until he offered an explanation as to how he came to be stained with the deceased's blood.

This was the subject of a vigorous attack by Mr. Rugarabamu who contended that it E amounted to shifting the burden of proof to the defence. Counsel's argument was that the evidence merely showed that the stains found on the appellant's clothes were of the same blood group as that of the deceased, but it was not conclusive that those blood stains, in fact, came from the deceased. Such blood stains, counsel went on, may have come from F some person other than the deceased but of the same blood group as the deceased. We can find no merit in this argument. We think that the evidence of the appellant's clothes bearing blood stains of the same blood group as the deceased but different from G his own was an incriminating circumstance which the trial judge properly took into account in considering the appellant's guilt. The reasoning of the learned trial judge was that considering the other circumstances, such as, the mysterious disappearance of the deceased from the appellant's company, the appellant's complete silence when asked H about it on different occasions and his being desperate and anticipating arrest over it, led to the conclusion that the blood stains in question were those of the deceased. In other words, in these circumstances that was the only reasonable conclusion to arrive at unless the appellant gave some explanation to the contrary. We cannot say that the learned I

judge was wrong. We think that he properly directed himself on the matter. A

In his second ground of appeal Mr. Rugarabamu criticised the trial judge for finding that the deceased sustained extensive injuries from which he must have bled. Counsel took the view that there was no evidence that the deceased sustained any lacerated wounds B from which he could have bled. This was in an attempt to fortify his earlier submission that the blood stains found on the appellant's clothes came not from the deceased but from someone else of the same blood group as the deceased. We think that this C submission is equally devoid of merit. There was evidence that the deceased sustained head injuries including fractures of the skull leading to blood oozing from inside the cranial cavity. He also sustained injuries on the legs. We think that the learned trial judge was perfectly entitled to find that such injuries as sustained by the deceased must have D led to bleeding externally thus making it possible for the appellant to get stained by such blood.

In the third ground counsel complained that the trial judge erred in shifting the burden of proof to the appellant when he remarked in his judgment that the appellant did not E attempt to explain the incriminating blood stains on his T-shirt. We have already said something about the burden of proof when dealing with the first ground of appeal, and now there remains very little to be said. When evidence has been adduced which, as in this case, implicates the appellant in the offence charged, then if the appellant is innocent, F one would certainly expect him to give some explanation, for the obvious reason that it would be in his best interest to do so. It is not

unusual for an innocent person to keep quiet when allegations are being or have been made against him showing or seeking to show that he is the offender. So that in such circumstances where the appellant would be G expected to give some explanation but he does not, we think that the court may properly comment on such silence, as it did in this case. But this, in our view, does not amount to shifting the burden of proof to the defence. All that the court said was that it was strange that the appellant should have kept quiet in such circumstances. We H therefore think that the complaint against the trial judge on this point is not well founded.

The last ground of appeal is a general one alleging that the conviction was against the weight of evidence. Having regard to what we have said in connection with the earlier grounds, our reaction to this ground should be apparent. Although the case was based I entirely on circumstantial evidence, we are satisfied that the

appellant's guilt was proved to the requisite standard. The incriminating pieces of A circumstantial evidence, such as we have briefly referred to in the preceding paragraphs, lead to the only reasonable conclusion that the appellant took part in committing the offence charged. In the result we uphold the conviction and accordingly dismiss the appeal. B

Appeal dismissed.

C

[zRPz]JOSEPH s/o KAMILIANGO & 5 OTHERS v REPUBLIC 1983 TLR 186 (CA)

Court Court of Appeal of Tanzania - Dar Es Salaam

Judge Nyalali CJ, Makame JJA and Kisanga JJA

May 8, 1984

CRIMINAL APPEAL 47 OF 1982

Flynote

Evidence - Circumstantial - Mere knowledge by the accused about the background and D circumstances of the death and subsequent discovery of the body of the deceased - Whether sufficient circumstantial evidence to support conviction.

Criminal Law - Provocation - Defence of provocation by witchcraft - Firm belief that the E deceased was practising witchcraft - Killing calculated with cool minds and in full possession of their faculties.

-Headnote

The appellants were jointly charged in the High Court at Bukoba on information for the F offence of murder contrary to section 196 of the Penal Code. They were charged together with one Joseph Kamiliango who died before this appeal could be heard and his appeal is thus abated by operation of law. The grounds of appeal are based on the defence of provocation and the insufficiency of circumstantial evidence to support the conviction. G

Held: (i) The mere knowledge about the background and circumstances of the death of the deceased, coupled with the discovery of the dead body of the deceased did not constitute sufficient circumstantial evidence to support a conviction of murder; H

(ii) since the appellants did not act suddenly and as their conduct clearly showed that they had calculated their move with cool minds and in full possession of their faculties, the defence of provocation by witchcraft cannot be availed to them. I

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NYALALI CJ

Case Information

Order accordingly. A

No case referred to.

S.R. Kahangwa for the appellants.

M.M.K. Mtaki for the respondent. B

[zJDz]Judgment

Nyalali, C.J., read the following considered judgment of the court: The appellants in this case, namely, Deogratias s/o Katabazi, Yolanda d/o Adolf, Kambalula d/o Adolf, Rozalia d/o Adolf and Steria d/o Adolf were jointly charged in the High Court at C Bukoba on information for the offence of murder contrary to section 196 of the Penal Code; and they appeared as the third, sixth, seventh, eighth and ninth accused persons, respectively. They were charged together with one Joseph Kamiliango, who was the first accused at the trial, and Msafiri Abdallah, who was the second accused. The said D Msafiri Abdallah was acquitted at the trial but the said Joseph Kamiliango was convicted together with the appellants as charged. The convicts were all aggrieved by the convictions and hence this appeal to this court. Unfortunately, the first accused, that is E Joseph Kamiliago died before this appeal could be heard and his appeal is thus abated by operation of law. Initially the information filed in the High Court included two other persons, that is, Kafukulu Rwameluka and Rubazibwa Bacheluka, in respect of whom a Nolle Prosequi was entered by the Director of Public Prosecution before the F commencement of the trial. They appeared as the fourth and fifth accused persons, respectively.

The remaining appellants, that is, the third, sixth, seventh, eighth and ninth accused persons were represented in this appeal by Mr. Kahangwa, learned advocate; whereas the Republic was represented by Mr. Mtaki, learned State Attorney. G

It is common ground that one Martina Adolf, who was the elder sister of accused Nos. 6,7,8 and 9, was killed during the night of the 24th/25th December, 1978, in Kazilantemwa village, Ikuza Island of Lake Victoria, within Muleba district. All the H remaining appellants and the deceased were residents of that village. It is undisputed that some time in December 1978 before the death of the deceased, accused Nos. 6,7,8 and 9 travelled to Kagunza Village on the mainland and visited the first accused, that is, Joseph Kamiliango who has died before the commencement of this appeal. The said I Joseph Kamiliango was a traditional medicineman and the four sisters travelled back with him to Ikuza Island. They were

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accompanied by one Msafiri Abdallah, who was the second accused at the trial, and A who was acquitted by the High Court. Furthermore, it is undisputed that the dead body of Martina Adolf was discovered by a search party of villagers after she had been reported missing by her husband. The discovery was made on the 26th December, 1978, near the homestead and in the banana grove of the third and seventh accused who B were husband and wife, respectively. In consequence of this discovery and as a result of interrogations of the third accused by the villagers, all the accused persons were apprehended by the villagers that same day. The dead body had a cut wound on the back of the head. Her left breast, vagina and two fingers of her left hand were cut off C and missing. As a result of interrogations, the first accused, whose appeal has abated, led a group of village militia and others to the home of one Alois Fabrian, where the first and second accused had been staying. There the missing breast, vagina and one finger were recovered. It is further undisputed that the police were informed and they came to D collect the accused persons and the dead body to help the police in their investigations. Subsequently, the remains of the deceased were viewed by Dr. Twahibu Musoke (P.W.5) on the shores of Lake Victoria on the 30th December, 1978. Accused No.1, whose appeal has abated, together with accused No. 6,7,8 and 9 were taken E before the Justice of the Peace P.W.4) to whom they made extrajudicial statements concerning the death of the said Martina Adolf.

It is the prosecution's argument that accused Nos. 6,7,8 and 9 believed that the deceased was a witch who had killed, by witchcraft, many members of their family. They F also believed that she had bewitched their father who was seriously ill at the time when they decided to pay the first accused a visit. To prevent the deceased from wiping out the entire family, the four sisters, who appeared in this appeal, sought the assistance of G the first accused, who agreed to kill the deceased on payment of a fee of shs 800/= out of which shs. 100/= were paid in advance and the balance was to be paid upon accomplishment of the undertaking. It is part of the prosecution's case that pursuant to this agreement, the first accused killed the deceased and removed the parts of the body which were found missing. H

The defence of accused Nos. 3,6,7 8 and 9 consisted in a denial of the prosecution case.

The first point for consideration and decision in this case is whether the accused persons, who are the appellants in this case, participated in killing the deceased. The learned trial judge considered I

the four sisters together as their defence and the evidence led by the prosecution against A them is the same for each of them. We propose to adopt the same approach by dealing with the third accused first and concluding with the four sisters of the deceased as a group.

In convicting the third accused the learned trial judge stated: B

> The evidential position then with regard to the 3rd accused is this. He mentioned the 1st accused as the participant in the killing and even knew where he could be traced, the 1st accused has been proved to have indeed taken part in the killing. Both the 1st accused the C proved killer and the deceased were at the home of the 3rd accused drinking pombe during the evening when the deceased was killed, her body was found in the shamba belonging to the 3rd

accused. Since one of the killers was a member of the drinking party at the house of the 3rd accused, then the killing must have taken place in or near the house and the body D taken into the shamba. That killing in or near his house that evening by one of his guests against his own sister in law could not have been carried out without the knowledge of the 3rd accused. The reasons he gave at the scene for the killing of the deceased, tallied with the E reasons given later in the extra-judicial statements by the sisters. This proved that the 3rd accused was an insider and party to this killing which took place in or near his house.

Mr. Kahangwa has strongly attacked the finding and views of the learned trial judge by F submitting in effect that mere knowledge by the third accused about the background and circumstances of the death of the deceased, are not sufficient circumstantial evidence to support the conviction of the third accused. We respectfully agree with the submissions made by the learned advocate. Those circumstances can be given an G innocent explanation. Firstly, the third accused could have acquired his detailed knowledge of the relevant facts by virtue of his being a member of the family which believed that the deceased was bewitching them. Secondly, the deceased could have been killed without the participation of the third accused near the homestead after she H had left the drinking party on her way back home. For these reasons we are satisfied that the conviction of the third accused cannot be sustained and we are bound to interfere with it.

But first, we must deal with the case of the four sisters. Each of them made an extra-judicial statement to the justice of the peace I

(P.W.4) which amounts to a confession to the effect that they hired the first accused to A kill the deceased to prevent her from eliminating the whole family by witchcraft. They paid an advance of shs. 100/= to the first accused and the balance of shs. 700/= was to be paid after the deceased had been killed. The extra-judicial statement made by the first accused also amounted to a confession by him which confirmed what the four sisters B stated in their own confessions. Further confirmation of the confession made by each of the sisters and the first accused was given by P.W.7, Jacob Iliharugo, who lived in the same village as the first accused. He testified about seeing the four sisters paying the first accused a visit some time in C December, 1978.

Mr. Kahangwa, learned advocate for the appellants, has submitted that the four sisters acted under provocation arising out of their firm belief that the deceased was practising witchcraft and was determined to finish them off. But as Mr. Kahangwa conceded, it is D quite clear on the evidence that the four sisters did not act suddenly but they deliberated upon their move at a meeting held to consider their position. They then travelled across the lake from their island village to the mainland where they negotiated with the first accused. The conduct of these four sisters clearly shows that they had E calculated their move with cool minds and in full possession of their faculties. The defence of provocation by witchcraft is thus not available to this "gang of four". They were a party to the killing of the deceased by hiring the killer.

The same evidence also supports the finding of malice aforethought on their part. For F these reasons concerning the case against accused Nos. 6,7,8 and 9 and the reasons concerning the

third accused, we hereby dismiss in their entirely the appeals of Yolanda Adolf, Kambalula Adolf, Rozaria Adolf and Steria Adolf who are accused Nos. 6,7,8 G and 9, respectively; but we allow the appeal of Deogratius Katabazi, that is, the third accused, by quashing his conviction, setting aside his sentence and directing that he be released from prison forthwith unless detained therein for some other lawful cause.

H Order accordingly.

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[zRPz]BENEDICT AJETU v REPUBLIC 1983 TLR 190 (HC)

Court High Court of Tanzania - Mtwara

Judge Samatta J

June 15, 1983

CRIMINAL APPEAL 41 OF 1981

Flynote

Criminal Law - Fraudulent false accounting c/s 317 (c) of Penal Code - Discrepancy B between stores ledger and physical goods in store - Whether sufficient to convict.

-Headnote

Following the discovery of discrepancies between the stores-ledger and the physical C goods by the Regional Stock Verifier the appellant was charged with eleven counts of fraudulent false accounting, each contrary to s.317(c) of the Penal Code, and with eleven counts of stealing by public servant, each contrary to ss. 265 and 270 of the same Code. At the end of the trial he was convicted on all the counts and was sentenced to a D substantive sentence of three years' imprisonment. The whole of the decision of the trial court is appealed against.

Held: In the absence of evidence demonstrating, to the satisfaction of the law, that the E appellant had converted the goods to his own use, it was unsafe to hold that the omissions to enter the details of the purchase in the store-ledger were a product of design and the intent behind them was to defraud.

Case Information

Appeal allowed. F

No case referred to.

S.M.M. Sengwaji for the respondent. G

[zJDz]Judgment

Samatta, J.: Mkomaindo Government Hospital is a well known institution in Mtwara Region. It is a district hospital for Masasi district. In 1980 the appellant, Benedicto Ajetu, was working there. He was a nursing officer. In addition to his normal nursing H duties he used to work as a store-clerk. In this capacity he was responsible for buying, inter alia, food items for consumption by the admitted patients in the hospital. He used to maintain a store-ledger in which he was required to enter the details of the purchases he made. It was common ground that between

March 27, 1980, and July 6, of the same I year he bought and took delivery of items as detailed herein below:

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DATE	ITEM	AMOUNT	A	VALUE IN SHS
1/3/80	Pigeon peas	3 bags		1,650
28/3/80	Cured Fish	2,200		3,520
1/4/80	Maize Flour	4 bags		972
	Pigeon peas	1 bags		550
25/4/80	Rice	60 kg	B	321
	Cooking oil	18 tins		648
6/5/80	Sugar	150 kg		1,050
	Salt	400 kg		600
17/6/80	Cured Fish	8,000		12,800
18/6/80	Chinese Cabbage	300 kg	C	1,200
	Tomatoes	185 kg		740
	Potato Vegetable (Matembele)	300 kg		2,340
	Oranges	200 kg		800
21/6/80	Bananas	281 kg	D	1,124
23/6/80	Oranges	286 kg		1,144
	Tomatoes	176 kg		707
	Bananas	278 kg		1,148
	Sweet Potatoes	288 kg		576
5/7/80	Chinese cabbage	430 kg	E	1,360
	Tomatoes	290 kg		1,160
	Potato vegetable (Mriba)	360 kg		2,160
	Oranges	307 kg	F	1,288

When, in August 1980, the appellant's store was checked by a Mr. Iddi Ngwale, a Regional Stock Verifier, none of the above items was found in it. On September 30,1980, the appellant was taken before the District Court of Masasi district where he was charged with eleven counts of fraudulent false accounting, each contrary to s. 317 G (c) of Penal Code, and with eleven counts of stealing by a person employed in public service, each contrary to s. 265 and 270 of the same code. The appellant pleaded not guilty and the case had to go to trial. In the end he was convicted on all the counts and was sentenced to a substantive sentence of three years' imprisonment. H

At the trial three witnesses gave evidence for the prosecution. These were: Dr. Venance Mhando, the doctor-in-charge of the hospital, Insp. Kisilla and Mr. Ngwale. The appellant, who called no witness, defended himself on oath. Dr. Mhando's testimony was, strangely, fairly short,

at least according to the record of the case. He asserted, I among other things, that "between June and July, 1980"

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(sic) he discovered that the amounts of fruits which the appellant was purchasing were A unusually big. Assisted by a senior nursing officer, he checked the appellant's store. What did the pair discover? The doctor's answer was: "We discovered that [the] accused did not enter any fruit in the store-ledger and other food were (sic) not also shown in the store-ledger." B

The doctor informed the hounds of justice about his discovery.

The appellant admitted to having received in his store all the items which formed the subject matter of the charge laid at his door. He made no effort to argue that he did not enter in the store-ledger the details concerning many of the items. He appeared to C explain away the omission by asserting that, apart from being a very busy officer, he was not specially trained for the store work. By necessary implication the appellant was claiming that the food items had been legitimately consumed at the hospital.

When the appeal was placed before my brother Mushi for admission or otherwise he D directed, while admitting it, that the District Court take additional evidence and certify the same to this court. The direction was made under the provisions of s.322(1) of the Criminal Procedure Code. In the course of the direction the learned judge said: E

It is not disputed, according to the record, that the alleged goods were received by the appellant. It is, also according to the record, not disputed that most of the items were not F entered in the Rations Ledger. Having regard to the nature of the goods, they could not have stored to be shown to the Stock Verifier, as they were mainly perishables, even if they had been entered in the Rations Ledger. The goods were for every-day consumption by the patients as they were vegetables and fruits. G

Having made these observations the learned judge went on to pose this question: "Is there evidence that those goods were not in fact used by the patients at Mkomaindo Hospital during the period in question?"

If I may respectfully say so, this was and still is an important question, on the answer to H which principally hinges the result of the appeal. The additional evidence was taken by the District Court on October 20, 1981, in the presence of both the public prosecutor and the appellant. It was given by one witness only: Dr. Venance Mhando. Unfortunately I the witness shed no further light on the case. The

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witness tried to fill the lacuna in the prosecution case, pointed out by MUSHI, J., by A saying:

> I received so many complaints from the patients that they were not receiving vegetables and fruits. During that time I was receiving bills showing that accused was buying vegetables and B fruits. I was receiving bills which showed that we were buying many vegetables and fruits. I was surprised because I was paying much money.

Was it established beyond reasonable doubt that the food in question had not been C supplied to the hospital kitchen (so that finally it could reach the patients)? As already pointed out, this was the deciding question in this case. As is well known, in a criminal trial in this country an accused person bears no burden to satisfy the court of his innocence. The burden lies on the prosecution to establish his guilt. In the case now at D the bar, therefore, the appellant bore no burden to satisfy the learned trial magistrate that the goods in question reached the kitchen of the hospital (or the wards). What was the difficulty in adducing evidence from one of the hospital's cooks to the effect- if that was E the true position - that the appellant had not made available to the kitchen the goods (or at least some of them) mentioned in the charge? What was the difficulty in calling those members of staff who were responsible at the relevant time for serving meals to the patients to come and give supporting evidence on this crucial point? With respect, I think F neither the sophistry of a Roman jurist nor the labour of Sisyphus can possibly provide satisfactory answers to these questions. As will have been already noted, Dr. Mhando, in the additional evidence, made some reference to the complaints which he received from patients on the non-serving of vegetables and fruits at the hospital. Since none of G the alleged complainants gave evidence in this case, in so far as that piece of evidence was given to establish the truthfulness of the complaints (from the patients), it was inadmissible in evidence for, plainly, it was hearsay: see s.62(1) of the Evidence Act, 1967.

It may be true, as was asserted by Dr. Mhando, that during the period in question the H appellant had bought far more food than at any other time before. But this fact could not, by itself, be very useful in establishing the assertion that the food had not been (legitimately) consumed at the hospital. It was necessary, to make the piece of evidence I carry some weight, to lead evidence on the number of patients admitted at the hospital at the relevant time and

also to give the numbers in respect of other periods used for comparison and contrast. A Unhappily, this was not done. It cannot seriously be said that this evidence was not available or could not be made available. In my settled view the lower court could - and should - have invoked the maximum omnia praesumuntur contra spoliatorem in this B case.

The prosecution did prove, and the appellant did not dispute, the fact that when the store was checked by Mr. Ngwale, the stock verifier, none of the purchased goods was found in it. I own I find it difficult to understand, in the absence of (proper) proof that the C amount of goods bought far exceeded the hospital's requirements at the material time, why anyone should have expected to find some of the goods in the store. The goods were bought to be consumed by patients. Taking into account, as was observed by Mushi, J., that most of the goods were perishables, I cannot understand - and it is not D for not beating my brain - why the fact that the food was not found in the store at the time Mr. Ngwale checked it could legitimately be taken as being only consistent with the food having been stolen.

I must now say a word or two on the counts for fraudulent false accounting. In the absence of evidence demonstrating, to the satisfaction of the law, that the appellant had E converted the goods to his own use, it was unsafe to hold that the omissions to enter the details of the

purchases in the store ledger were a product of design and the intent behind them was to defraud. If I may respectfully say so, I think Mr. Sengwaji, counsel for the Republic, was perfectly entitled to decline, as he did, to support the learned trial F magistrate's findings on the eleven counts too.

There is not much room, I think, for debate over the fact that there was a fairly strong suspicion against the appellant in this case, but, as the learned authors of Field's Law of G Evidence (10th ed., Vol.1) very rightly observe, at p.266, "law reports are full of access based on the wisdom and experience of eminent jurists that suspicion, however strong, cannot take the place of proof." If the alleged offences in the instant case were in fact perpetrated, they were not, as, I hope, I have sufficiently demonstrated, proved beyond rational controversy. H

For the reasons I have endeavoured to give, I allow the appeal, quash the conviction and set aside the sentence imposed thereon. The order for compensation is, naturally, also set aside. As the appellant is now a free man, having finished serving the sentence I have I set aside, I make no order for his release from custody.

Appeal allowed.

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[zRPz]REPUBLIC v STEPHEN MWEJI & LUGANGIZA NDARO 1983 TLR 195 (HC)

Court High Court of Tanzania - Mwanza

Judge Katiti J

9 June, 1984

CRIMINAL REVISION 39 OF 1983

Flynote

Criminal Practice and Procedure - Charge - Defective - Joinder of parties in one count - B Whether occasioned failure of justice.

Criminal Practice and Procedure - Defective charge - Failure to point out the relationship between principal and agent - Whether curable - Section 3(2) of the Prevention of Corruption Act 1971.

Criminal Practice and Procedure - Sentences - Illegal where it is less than what is C prescribed by statute - Section 3(2) of the Prevention of Corruption Act and section 4(a) and para 9 of the first schedule to the Minimum Sentences Act 1972.

Criminal Practice and Procedure - Sentence - Order of forfeiture of property - Whether legal. D -Headnote

The two accuseds were jointly convicted of corruption under section 3(2) of the Prevention of Corruption Act 1972. The two accuseds, who were principal and agent, gave an inducement to a public officer so that he could do them a favour of deviating E from the normal procedures. The charge did not charge them under separate sequential numbers. Further, the charge did not state the relationship of agent and principal that existed between them. At the end of the trial, the

trial court imposed a sentence less than that prescribed by statute and ordered forfeiture of the money that was involved in the corrupt transaction. On revision: F

Held: (i) Where more than one accuseds are jointly charged their names and addresses should be contained in the charge sheet separately and sequentially numbered; G

(ii) failure to point out an agent/principal relationship renders the charge defective under section 3(2) of the Prevention of Corruption Act 1971 but such defect is not fatal if the omission does not prejudice the accuseds to the extent of miscarriage of justice;

(iii) where a minimum sentence is prescribed by statute the court has no discretion to impose a lesser sentence; H

(iv) where a trial magistrate orders forfeiture of property, he must show legal authority for his actions.

Case Information

Order accordingly. I

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KATITI J

Cases referred to: A

1. Mwita v Republic [1971] HCD no. 304

[zJDz]Judgment

Katiti, J.: Before Ukerewe District Court were Magobe Maila & Munyaga Mapesa B and Stephen s/o Mweji & Lugangiza Ndaro, accused and charged with two counts of corrupt transactions c/s 3(2) of the Prevention of Corruption Act No. 16 of 1971. The end of the trial witnessed the 2nd accused being sentenced to 12 months' imprisonment on each count after conviction, with an order that the sentences run concurrently.

On scrutiny of the file, several aspects that demand correctional comment have emerged. C The first aspect that needs comment is the charge itself. Although the charge shows that Magobe Maila Munyaga Mapesa was the accused person, it is only the particulars of the offences charged that reveal that Stephen Mweji Lugangiza Ndaro was another D accused person. It is clear therefore that both accuseds were each facing the same charges of corrupt transactions c/s 3(2) of the Prevention of Corruption Act No. 16 of 1971, but not put or placed in the charge sheet in the consecutive and sequential manner. The procedure as adopted is a wrong one, for it is the procedure and requirement of the E law that, where more than one accuseds are jointly charged, their names and addresses should be contained in the charge in clear form. And where and when such persons join in the commission of an offence, all or any of them may be jointly charged with it, or even such accused persons may be charged separately, but where they are F jointly charged, they must be numbered consecutively and sequentially.

The other aspect that demands or demanded a corrective touch, is the fact that the charges falling under section 3(2) of the Prevention of Corruption Act of 1971 as they G do, omitted to aver the principal and agent's business or affairs relationship. It is the law that where the charge falls under section 3 of the Corruption Act 1971 such charge should point out the relationship, that the person charged corruptly gave the money or advantage or consideration to the agent or the agent received the same for doing or forbearing to do anything in relation to the agent's

principal's affairs of business. The case H of Mwita v Republic [1971] H.C.D. No. 304 is an authority in this direction. The Magistrate therefore is reminded that he should always check the charge to see whether the ingredients of such charge are incorporated in the same charge.
The question now is whether this omission prejudiced the accuseds to the extent of I miscarriage of justice. I have a mind to
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KATITI J
answer this question in the negative. I have the following reasons. It is clear that the A accuseds knew that they were corruptly giving money to P.W.1, a person employed in public service. They clearly knew that this money was meant to be an inducement to P.W.1, to deviate from known normal procedure, to allow them to pass through a short-cut. It does therefore appear to me that all along the accuseds had no mistaken B ideas as to what they were doing, and I am therefore satisfied that they were telling P.W.1 through corruption to perform his duty contrary to established office norms. I therefore hold the view that the omission of averment of principal-agent relationship in the particulars of the offence, did not prejudice the accuseds, as the accuseds knew that C the business or affairs that they were urging P.W.1 to perform with infidelity as a result of corruption was actually Government Business, the government being the Principal of P.W.1. I therefore fail to see how they could feel prejudiced.
The other aspect that attracted our attention is the sentence that the trial magistrate D imposed upon the 2nd accused person. The 1st Accused died before the trial ended. As I earlier pointed out, the 2nd accused was sentenced to twelve months' imprisonment on each count, for offences that fall under section 3(2) of the Prevention of Corruption Act No.16 of 1971. With due respect, I think the trial magistrate went contrary to the law, E for under section 4 (a) and para 9 of the first Schedule to the Minimum Sentences Act 1972, the offence of taking part in a corrupt transaction contrary to section 3 of the Prevention of Corruption Act 1971, attracts the statutory minimum sentence for the F same offences, of three years' imprisonment. Under the Minimum Sentences Act, under no circumstances should an accused person convicted under section 3 and 6 of the Prevention of Corruption Act, be awarded an imprisonment sentence of less than three years. It is therefore clear that the sentence of 12 months' imprisonment that the trial G magistrate imposed is an illegal one. I therefore set aside this illegal sentence, and impose three years' imprisonment. It is therefore ordered that the legal process be initiated to have the accused serve the sentence imposed according to law.
And finally there is an aspect of forfeiture. The trial magistrate ordered that Shs. 100/=, H that was involved in the two offences be forfeited to the Republic. It is a requirement of case law in this country, that where a trial magistrate orders forfeiture of property, he must show the legal authority under which he is acting. In this case the magistrate did not I show under what statute he was ordering the forfeiture of 100/=. I shall therefore try and see what law the
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magistrate was applying, if any. I have gone through the Minimum Sentences Act 1972, A and I am satisfied that though the same statute provides for compensation, it makes no mention of forfeiture. Coming to the Prevention of Corruption Act No. 16 of 1971, section 3(3) of the same

Act seems to be relevant. It provides that where a person convicted is an agent, the court may, in addition to sentence, order him to pay his principal the amount or value of an advantage received by him, and whether such B convicted person is an agent or not, the court may order that the amount, or value of advantage received by him, or any part thereof be forfeited. But it is not provided that the money, or consideration, or property corruptly given, but not corruptly received by a C person convicted of an offence under section 3 be forfeited. In this case the person convicted did not corruptly receive the amount in question. It is therefore clear that the forfeiture order that was made by the trial magistrate in this case had no basis in law. The D above is said not without an impeccable moral impression that refunding corruption money to the corrupter is like giving back the murder weapons to the murderer. I should have imagined that it would be consistent with the obvious severity of the Prevention of Corruption Act. 1971, to order forfeiture of any money, advantage or consideration E involved in a corrupt transaction, without regard as to whether the person convicted is the receiver or not. All the same, the forfeiture order is hereby set aside.

Order accordingly.

1983 TLR p198

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[zRPz]REPUBLIC v DEONATUS & MKUNGU s/o BWIRE 1983 TLR 198 (HC)

Court High Court of Tanzania - Mwanza

Judge Katiti J

June 9, 1984 G

CRIMINAL REVISION 42 OF 1982

Flynote

Criminal Law - Minimum Sentences Act, 1972 - Whether serving sentence in respect of previous conviction can be a special circumstance for non-application of the Minimum Sentences Act, 1972. H

-Headnote

The accused Deonatus & Mkungu s/o Bwire was charged with stealing by servant before Ukerewe District Court. At the end of the trial the accused was found guilty, I convicted and sentenced to 12 months' imprisonment. The accused did not appeal, but the record

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KATITI J

was called for revision for some unsatisfactory aspects of the charge and the sentence A imposed.

Held: (i) where the accused is already serving a sentence in respect of a previous conviction to take the same as a special circumstance for non-application of the Minimum Sentences Act, 1972 would be contrary to logic, law and principles of B sentencing;

(ii) it is the law that where a person is convicted of a scheduled offence (under the Minimum Sentences Act, 1972, section 5) and the trial court is satisfied that such convicted person, within seven years preceding the date when he committed such offence, had been convicted of like or scheduled offence, the trial court shall sentence C him to imprisonment for a term of not less than five years.

Case Information

Order accordingly.

No case referred to. D

[zJDz]Judgment

Katiti, J.: Before Ukerewe District Court was Deonatus & Mkungu s/o Bwire charged under section 271 and 265 with stealing by servant. At the end of the trial, the same E accused was found guilty, convicted as charged, and sentenced to 12 months' imprisonment. Following on its heels was a compensation order, that the accused should pay Shs. 1,093/40 as compensation to the Government. The accused has not appealed.

This record has been called for revision because it has revealed two unsatisfactory F aspects: First the charge itself, and second, the sentence imposed. I shall first deal with the charge. Having looked into the evidence, I am satisfied that it is very clear, that the accused person was employed as a Court Clerk, attached to Kabigo District Court in Ukerewe District, Mwanza Region. It is equally clear, that the amount Shs. 1,093/40, G was both the property of the Government, and come into his possession by virtue of his employment as a Government Servant. He was therefore a person employed in Government Department i.e. the Judiciary, and he should have been charged under Section 270 and 265 of the Penal Code, with stealing by person employed in Public H Service. Although charging the accused under 271 and 265 of the Penal Code was obviously an error, it does not seem to me, that the accused was prejudiced thereby. For I am sure there was no mistake in the accused's mind, as to his employment in Government Service i.e. the Judiciary. I shall therefore I

amend the conviction to read under ss. 270 and 265 of the Penal Code, rather than A under section 271 and 265 of the Penal Code.

Second aspect is the sentence that was imposed upon him. In his own mitigation the accused had the following to say and I quote:

"I am a convict in prison for a term of eight years, I pray for the leniency of the Court." B

The trial magistrate in sentencing the accused had the following to say in his preamble to sentence, and I quote:

The accused is a first offender. I have taken into consideration as a special circumstance, that C the accused is a convict in which he is serving a minimum sentence of eight years in jail. In this case I admit that the court can take a special circumstance and impose other sentence than the Minimum Sentence Act No. 1 of 1972. In this case I sentence the accused to twelve (12) months' imprisonment. D

With due respect to the trial magistrate, I must say that his preamble to and finally the sentence are full of errors both of fact and law. Firstly, on the accused's own admission E that he had previously been convicted of an offence and was serving a sentence under the Minimum Sentences Act, assuming when he committed this offence, he had previously been convicted, how the magistrate could treat him as a first offender boggles my mind. Secondly taking the accused's previous conviction, - i.e. the sentence he is F serving as special circumstance, for non-application of the Minimum Sentences Act, is contrary to logic, law and principles of sentencing. For under normal circumstances, even where the Minimum Sentences Act is not applicable, the fact that the accused has been previously convicted, may justify heavier sentences, as such previous conviction (s) G more often than not, demonstrate such accused person as a habitual criminal.

All the same, it is the law that where a person is convicted of a scheduled offence (under the Minimum Sentences Act 1972 section 5) and the trial court is satisfied that such convicted person, within seven years preceding the date when he committed such H offence, had been convicted of a like or scheduled offence, the trial court shall sentence him to imprisonment for a term of not less that five years. I am however, reluctant to lean against these provisions. For the record we have does not reveal that the accused had, I seven years preceding the date the same accused committed this offence, been convicted of similar, like or scheduled offence. The unceasing fear

here is that the two cases may have overlapped each other at the investigatory stage, but A the conviction reached in one case during the pendency of the current one. For different reason therefore, I find it unsafe to apply the provisions of section 5(a) of the Minimum Sentence Act 1972.

But this is not to say that this is a case or material to which the Minimum Sentence Act B 1972 does not apply. Even if for technical but obvious impediment, the accused was a first offender, so long as the amount stolen exceeded one hundred shillings, and belonged to a specified authority - the Government - at least the provisions of section 4 of the C Minimum Sentences Act 1972, are inevitably attracted for application. That means the twelve months' imprisonment sentence was still illegal. I shall proceed therefore to set aside the 12 months' imprisonment sentence which is obviously illegal and impose 3 (three) years' imprisonment, under the provisions of section 4 of the Minimum Sentences Act 1972. D

E Order accordingly.

F

[zRPz]AMOS JONATHAN v J.S. MASUKA AND OTHERS 1983 TLR 201 (HC)

Court High Court of Tanzania - Mwanza
Judge Munyera J

December 21, 1979
CIVIL CASE 8 OF 1974
Flynote
Tort - Defamation - Libel - Allegation of defrauding the employer -Publication of defamatory G matter - Accusing plaintiff of having committed a criminal offence - Whether defence of justification available - Standard of proof beyond reasonable doubt.
Tort - Defamation - Defence of qualified privilege- When such defence available. H
-Headnote
On 14/5/1974 the plaintiff filed a libel suit claiming damages to the amount of shs. 30,000/=. The basis of the plaintiff's case was that the defendants had defamed his character by calling him a thief. The facts which were based on an allegation that the plaintiff had defrauded his employer, one of the defendants, were admitted. The only I question was whether the defendants had any defence.
1983 TLR p202
MUNYERA J
Held: (i) In order to be availed of the defence of justification the defendants have to A prove that their accusation was true and the standard of proof is beyond reasonable doubt;

(ii) qualified privilege covers the publication of defamatory matter by a person who has a legal, social and moral duty to publish and the recipient has a legal, social and B moral duty to receive the publication.
Case Information
Order accordingly.
No cases referred to. C
[zJDz]Judgment
Munyera, J.: This is a libel suit. The plaintiff was employed by the defunct Nyanza Industrial Company, a subsidiary of the former Mwanza Regional Co-operative union. D He worked as a clerk at a Nassa ginnery. The 1st defendant was an Administrative Manager, the 2nd and 3rd defendants were artisans at the same place. The 4th defendant was the employer of all three defendants as well as the plaintiff. In addition to their jobs, the 2nd and 3rd defendants were Chairman and Secretary respectively of the E Workers' Committee there. The plaintiff's duties included recording the names of casual workers in the master roll and preparing payments for them. On 9/8/73 the Ginnery Manager wrote a letter (EXD) to the plaintiff telling him that it had become known that he (plaintiff) was defrauding the Company by including false names in the F master roll and receiving their payments. He told him to offer an explanation by 10/8/73. On 14/8/73 the 1st defendant, the Administrative Manager, wrote to the plaintiff (EX.A) informing him that he had been dismissed with immediate effect because of his dishonesty and swindling of the Company. The plaintiff took the matter up with the workers G committee (2nd and 3rd defendants were Chairman and Secretary respectively). The committee investigated the complaint, made its deliberations and communicated the outcome to the plaintiff in a letter dated 6/9/73 (EX.B). The letter informed the plaintiff that it supported the management's action of dismissing him and that the committee was H not there to defend

thieves. Later the plaintiff's affair was referred to the Conciliation Board which ruled that the plaintiff was wrongly dismissed and should be reinstated without loss of his career. The management refused saying they had no longer any faith in him. They however agreed to terminate his service with benefits instead of dismissal and I that was the end of the matter so far as the Company was concerned. On 14/5/74 the plaintiff

1983 TLR p203

MUNYERA J

filed this suit claiming damages to the amount of shs. 30,000/=. The basis of plaintiff's A case is that the Administrative Manager (1st defendant), the 2nd and 3rd defendants defamed his character by calling him a thief. The 4th defendant was joined in its capacity as the employer of the first three defendants and bore vicarious liability for their vicarious actions. Both parties were represented by Counsel. B

This case turns around legal issues. Most of the facts have been admitted. It is agreed that there was publication and that the publication contained defamatory matter in that it accused the plaintiff of having committed a criminal offence. The question is whether the defendants have any defence. The Counsel for the plaintiff submitted that the only C defence that could be available to them is that of justification. In order to avail of that defence the defendants have not so proved and the court should find for the plaintiff. In the defendant's written statement of defence (para 6) it has been averred that the defendants made the publication bona fide without malice and on qualified privileged D occasion. Now to begin with, I would agree with the Counsel for plaintiff that the defence of justification will not help the defendants. They have not proved beyond reasonable doubts that the plaintiff committed the criminal offence they alleged in their letters (EX.A&B). But this is not the end of the matter. As argued in para 6 of the E written statement of defence and by the Defence Counsel, the defence of qualified privilege is available to the defendants.

Qualified privilege covers the publications of defamatory matter by a person who has a F legal, social or moral obligations to publish and the recipient has legal, social and moral duty to receive the publication. In this case the position runs like this: the 1st defendant was an Administrative Manager whose responsibility was to take care of the discipline of the workers of his organisation. He had powers to dismiss unbecoming workers, to G inform the latter why he dismissed him. The letter (EX.A) was copied to the ginnery Manager at the headquarters, various branch managers of the company, the personnel section and the accounts section all of whom had a duty to know of the situation. The publications never went beyond those people. The 2nd and 3rd defendants were H members of the Worker's Committee duly established under the Security of Employment Act. No. 62 of 1964. The plaintiff referred his complaint to the said committee which was legally bound to investigate the matter and make its decisions known to all concerned. The letter (EX.B) stated that it supported the action of the management (1st I defendant) and the publication never went beyond the people concerned with the

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plaintiff's affairs. Therefore the defendants were doing their legal duty and had no malice A towards the plaintiff.

To find that what the defendants did amounted to defamation would create a far-reaching and a very dangerous precedent. No longer will an employer warn his employees for unbecoming conduct lest the grounds for dismissal would be taken as defamatory. B
I would dismiss this suit in its entirety with costs to the defendants.
C Order accordingly.
1983 TLR p204

[zRPz]STEPHANO s/o RWEYENDERA v REPUBLIC 1983 TLR 204 (HC)

Court High Court of Tanzania - Mwanza
Judge Mushi J

February 29, 1984 D
CRIMINAL APPEAL 154 OF 1983
Flynote
Criminal Practice and Procedure - Compensation order in criminal trial - Accused to be given opportunity to be heard and/or contest award of compensation. E
Criminal Practice and Procedure - Compensation order - Large and contentious figure - Wiser to pursue in a civil court.
-Headnote
The appellant was charged on different counts of burglary, stealing and malicious F damage to property. He was acquitted on counts of burglary and stealing, and convicted on the count of malicious damage to property and was sentenced to a fine of Shs. 3,000/= or twelve months' imprisonment in default. The appellant was further ordered to pay Shs. 23,750/= to the complainant as compensation for the damaged property. The G appellant is appealing against conviction and sentence as well as the compensation order.
Held: (i) Where a criminal court decides to award compensation under section 176 of the Criminal Procedure Code, the propriety of the cost or value of the property in H question becomes an issue; thus, before a compensation order is made, the accused must be given an opportunity to admit the amount of compensation intended to be awarded or contest it;

(ii) where the amount due for compensation appears to be reasonably large and I contentious, it is wiser to allow the affected person to pursue it in a civil court.
1983 TLR p205
MUSHI J
Case Information
Order accordingly. A
Cases referred to:

1. John s/o Juma v. R, Cr. App. No. 699 of 1969 H.C. Mwanza (unreported)
2. R.v Mwita s/o Muhoni [1969] H.C.D. n.47. B
3. William Frank Haining & 2 Others v R. [1972] H.C.D. n. 53.

S. Kidela, for the respondent.

[zJDz]Judgment

Mushi, J.: The appellant in this matter is Stephano Rweyendera. The appellant was C charged with three counts. On the first count he was charged with burglary c/s 294(1) of the Penal Code. On the second count he was charged with stealing c/s 265 of the Penal Code and on the third count he was charged with malicious damage to property c/s 326(1) of the Penal Code. He was acquitted on the counts of burglary and theft but he D was convicted on the third count of malicious damage to property and was sentenced to a fine of Shs. 3,000/= or twelve months' imprisonment in default. The appellant was further ordered to pay Shs. 23,750/= to the complainant as compensation for the damaged property. The appellant is appealing against conviction and sentence as well as E against the compensation order.

The appeal against conviction has no merits at all. The evidence of PW 3. - Peter Kamgisha, PW.4 - George Nicolaus and PW.5 - Theobald Kishani were that of eye witnesses who clearly saw the appellant destroy the articles as stated in the charge sheet. F The event was done openly and in a very dramatic way. Many people were attracted to watch the event particularly those tenants who were living in that building, and it included the three witnesses mentioned above. One of the witnesses is a brother-in-law of the appellant who was living in that house and it is most unlikely that he would tell lies G against the appellant. The evidence left no doubts at all that the appellant committed the offence as charged and conviction cannot be challenged. The appeal against conviction is hereby dismissed.

Regarding the sentence, the appellant in his petition has stated that and I quote: H

That under the circumstances, the sentence imposed by the trial court was manifestly excessive and should be reconsidered by your Honourable court. I

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MUSHI J

The appellant was sentenced to Shs. 3,000/= fine or twelve months' imprisonment in A default. The fine was paid. The maximum sentence provided by law for an offence under section 326(1) of Penal Code is seven years. What punishment to give to a convicted person is a matter within the discretion of the trial magistrate and this court will not B interfere except where it appears that in assessing the sentence the trial magistrate has acted on some wrong principle or has imposed a sentence which is manifestly excessive or inadequate. In this appeal, the appellant has claimed that the sentence of Shs. 3,000/= fine is manifestly excessive. Is there any justification on this point? In sentencing the C appellant the learned trial magistrate had this to say:

Sentence: Accused is a first offender to this offence of malicious damage to property. Accused had alleged to have a sick person who is to date still admitted in hospital. Accused as I had D seen he maliciously damaged PW.2's properties. Accused knew the outcome of his actions. Accused though he is the first offender deserves severe punishment. Accused is hereby sentenced to a fine of Shs. 3,000/= or twelve months imprisonment in default. E

It is a good practice to give reasons why a particular sentence is imposed but whether reasons are given or not, it is necessary for the trial magistrate to seek information on the accused character, antecedents and other relevant considerations before assessing F punishment. However each

case must generally be viewed in its own context. It seems to me that in this case the trial magistrate over-looked one important mitigating factor which was available in favour of the appellant and that was that the appellant was forced by circumstances into committing the offence. The appellant committed the offence while he G was under serious provocation. While provocation is not a defence, it is very clear that had the appellant not been seriously provoked by the complainant - P.W.2 - Renatus, he would not have committed this offence. The evidence clearly established that PW2. was on that relevant night found sleeping in the bedroom of PW.1, who was H appellant's wife, where the appellant would have spent the night. P.W.1. Melasiana and P.W.2- Fortunatus were fully aware that the appellant was in town and would in all probabilities spend the night in the matrimonial home. P.W.2.- Fortunatus, however with impunity went to sleep in the bedroom of P.W.1. It was proved that PW.2 had actually I moved and was staying in there. The explanation that PW.2 had only gone there temporarily

to guard the premises at the request of PW.1 does not seem to hold much water as there A was some other person who could have guarded the place without anybody raising eyebrows e.g. PW.5- Theobald. The notion that the complainant - PW.2 had taken over the appellant's wife, even though the wife was not present, would in all probability provoke any reasonable person and the appellant was no exception. The appellant B definitely acted whilst under serious provocation as he would not otherwise have done anything. While therefore that provocation is not a defence, it is however a mitigating factor and in this case it was very important. For example in the case of John s/o Juma v.R. (Criminal Appeal No. 696 of 1969, Mwanza High Court) and R.v Mwita s/s C Muhoni [1969] HCD 47 are but a few cases in which provocation has been taken as a mitigating factor. Had the learned trial magistrate taken this factor into consideration it is doubtful whether he would have found it necessary to impose a severe sentence as he stated. Taking into account the circumstances of this case and particularly the factor D which I have just described above, a sentence of Shs. 1,000/= fine would serve the purpose. The sentence of Shs, 3,000/= fine is accordingly reduced to that of shs. 1,000/=. As the fine has already been paid, the balance of shs 2,00/= should be refunded to the appellant. E

I now turn to the appeal against the compensation order. The appellant in his memorandum of appeal in ground No. 4 states and I quote:

That the nature of the alleged damaged properties was not conclusively proved as was F required. One should have expected PW.2 to produce receipts to prove the costs of these properties. Under the circumstances, the trial magistrate had no sufficient material evidence before him upon which to base his conclusion that the properties damaged were worth shs. 23,750/=. G

The order made by the court was worded in the following terms and I quote:

Order: Accused should compensate the damaged goods properties totalling shs. 23,750/=

H

Our courts are empowered to award compensation in appropriate cases as provided under section 176 of Criminal Procedure Code. However, under the said section compensation can only be awarded if: I
1983 TLR p208
MUSHI J
The person has suffered material loss or personal injury in consequence of offence A committed; and substantial compensation is in the opinion of the court, recoverable by the person by civil suit.
If the two conditions exist and the court is inclined to exercise its discretion to award B compensation, then after careful consideration the court may order payment of such amount as it seems fair and reasonable. The requirement that the amount must be fair and reasonable entails vigorous judicial assessment of the amount. And naturally it will C involve the accused and the victim as in a civil suit. The exercise may be simple where the figure is admitted or where damage is of readily ascertainable or is of comparatively small value. In this case the court awarded Shs. 23,750/=. It is not clear as to how the learned trial magistrate arrived at this figure. According to the charge sheet, the amount D of damaged property was valued at Shs. 26,200/=. During the trial PW.2 - Fortunatus Rwechungura, whose property was damaged, gave evidence and stated the value of various articles. According to PW.2 his four shirts were worth Shs. 4,000/=, a jacket was worth Shs. 1,800/=, four trousers were worth Shs. 2,000/=; one Oxax E watch was worth Shs. 2,500/=; twelve medical books were worth Shs. 12,000/= and a stethoscope was worth Shs. 2,000/=. According to these figures the total is Shs. 24,300/=. During the trial, the appellant did not cross-examine the witness on the value of the items as was asserted by the witness. This is quite normal and the appellant cannot F be blamed for not having asked such questions. This is so because the main preoccupation of a criminal trial is to establish the guilt or innocence of the accused. The principal aim of criminal law is to punish the wrongdoer. Compensation does not follow as a matter of course in a criminal trial and thus an accused does not bother himself with G the cost or value of the property involved in such a trial. Where however, the court decides to exercise its discretion and award compensation under section 1976 of Criminal Procedure Code, then the propriety of the cost or value of the property in question becomes an issue and thus before a compensation order is made, the accused H must be given an opportunity to admit the amount of compensation intended to be awarded or contest it. To make an order without first calling upon the accused to say something will amount to condemning someone unheard which undoubtedly is against the principles of natural Justice. In the case of William Frank Haining and 2 Others v. R. I [1972] HCD 53, the Court of Appeal while considering payment of
1983 TLR p209
MUSHI J
compensation under section 176 of the Criminal Procedure Code said and I quote: A
An order under section (176) would usually be made in the application of the prosecutor but if not a court may clearly act on its own accordingly but in doing so it is performing a judicial act B which would materially affect both the party to receive the compensation and the

convicted person who has to pay the compensation. It is essential here that these persons, and more especially the convicted person, be given an opportunity of being heard. The convicted person C should be called upon to show cause why an order should not be made. To do otherwise would be a breach of natural justice and would amount to a person being condemned without having a hearing.

In the appeal before me not only that the appellant was not called upon to show cause as D to why the compensation order should not be made, but also the amount of compensation was not readily ascertainable. The figures as given by PW.2 were not supported by documents or some credible evidence. Four shirts were said to cost Shs. 4,000/= which is Shs. 1,000/= per shirt but no receipts were produced. Similarly for all E other items. Where the amount due for compensation would appear to be reasonably large and contentious, it would be wiser to leave the affected person to pursue it in a Civil Court. For the reasons I have given the compensation order offended the principles of natural justice and cannot be allowed to stand. The appeal against the compensation F order is allowed and the said order is accordingly set aside. It is for the affected party to seek remedy otherwise.

G Order accordingly.

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A

[zRPz]ALLY FUNDI v REPUBLIC 1983 TLR 210 (HC)

Court High Court of Tanzania - Mtwara

Judge Samatta J

June 13, 1983

CRIMINAL APPEAL 110 OF 1981

Flynote

Evidence - Confession - Admissibility of confession made to a police officer before B enactment of s. 4 of Evidence (Amendment) Act. 1980; and lamination imposed by s. 31 of Evidence Act, 1962.

-Headnote

This is a consolidated appeal of Ally Fundi and Hassani Hokororo against conviction C and sentence for the offence of attempted robbery, a decision of the District Court of Mtwara. In arriving at the decision the learned magistrate heavily relied on the confession he found Hassani Hokororo to have made to the police team. D

Held: (i) The only way in which a confession can be taken into account is as evidence; under section 33 (1) of the Evidence Act, 1967 the confession by the accused person can only be used to lend assurance to other evidence against his coaccused, evidence which falls short by a very narrow margin of the standard of proof necessary for a E conviction;

(ii) a mere opportunity to commit an offence cannot be the basis for convicting an accused; suspicion, however grave it may be, cannot be a substitute for proof in a court of justice.

Case Information

Order accordingly. F

Cases referred to:

1. Kenyarithi s/o Mwangi v Regina (1956) 23 E.A.C.A. 422.
2. R. v Tomu s/o Ngulombe (1943) 10 E.A.C.A. 54
3. Gopa d/o Gidamebanya & 5 Others v Regina (1953) 20 E.A.C.A.318. G
4. Karaya Njonji & Others v Regina (1953) 20 E.A.C.A. 324
5. Rex v Wadingombe bin M. Kwanda alias Anton & Two Others (1941) 8 E.A.C.A. 33
6. Mussa Luinda v R. [1960] E.A. 470 H

[zJDz]Judgment

Samatta, J.: Mr. Murtaza Karatela is a businessman. He resides at Mahuta. On July 9, 1979, he left the village for Mtwara. He was accompanied by two men, Mr. Mohamed Bakari and Mr. Rashidi Ntegula. The trio travelled in a landrover. It was being driven by I Mr. Karatela, who was sending Shs. 20,000/=

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SAMATTA J

to the bank in Mtwara town. On reaching very near a village called Ngorongoro the trio A heard four gunshots. Suspecting that some robbers had waylaid them, Mr. Karatela pressed the accelerator further. They succeeded to reach Mtwara without being harmed or robbed. There Mr. Karatela reported the unusual incident to the police. Led by Inspector Kussaka, a team of policemen left for Ngorongoro. Before reaching its B destination the team met four men. It was at Mdui village. The men were going in the direction of Mtwara. Suspecting them of being the persons they were looking for, the guardians of the law arrested them. During interrogation which followed, one of the C arrestees, Hassan Hokororo, told Inspector Kussaka, in the presence of the other policemen, that he (Hassan Hokororo) and his fellow arrestees were the persons who had shot at Mr. Karatela's motor vehicle. According to the police inspector, Hassan Hokororo led the police team to a bush, near Ngorongoro village, where he said they D had hidden the firearm. There a rifle was found, buried in the ground. In the same area were found four spent cartridges. Later the cartridges, together with the rifle, were submitted to a ballistics expert for examination. The expert's report revealed that two of the cartridges had been discharged from the rifle. Basically this is the evidence which E was laid before the District Court of Mtwara district by the prosecution against the four arrested persons: Hassan Hokororo, Alli Fundi, Hamisi Abdarahamani and Athumani Bwatama. The last accused died after the case for the prosecution had been closed and before the first defence case had opened. F

Hassan Hokororo's defence was, briefly, this: on the material day, at about 7.30 a.m., he went to his radio repair workshop. About one and a half hours later some policemen came to the area. They searched Athumani Bwatama's house. They said they recovered some bullets from it. On searching his workshop they found a radio which they G suspected to be stolen property. His explanation that the radio belonged to one of his customers proved to be of no avail. He was arrested and charged with attempted robbery. Ally Fundi's story was that on the night of July 8,

1979, his father-in-law died at the Ligula hospital. On the following day he left for a place known as Mbawale to H report the sad event. He did not reach that place; he was arrested by the police, who suspected him of having participated in an attempted robbery at Ngorongoro. Hamisi Abdarahamani asserted that on the material day he had left his home (at about 7.00 a.m.) for Maili-kumi village to buy some cassava. While he was at the village's I

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SAMATTA J

bus stand four policemen came there and arrested him on a charge of attempted A robbery.

The learned trial magistrate reviewed the evidence before him at some length. In the upshot he came to the conclusion that the guilt of the three accused persons had been B demonstrated beyond reasonable doubt. He accepted as a fact that Hassani Hokororo had confessed that he and his co-accused had attempted to shoot at Mr. Kartela's vehicle. He also believed the policemen's evidence that accused showed them a rifle hidden in a bush on the outskirts of Ngorongoro village. Upon the evidence the learned C magistrate saw no reasonable conclusion other than that the accused persons' (common) intention was to rob Mr. Karatela and his companions. He accordingly convicted them as charged. In arriving at that decision the learned magistrate heavily relied, even in the case of Ally Fundi and Hamisi Abdarahamani, on the confession he found Hassani Hokororo to have made to the police team. D

Hassan Hokororo and Ally Fundi are aggrieved by the learned magistrate's decision; hence the present consolidated appeals. Hamisi Abdarahamni has elected to prefer no appeal.

This case is not without some difficulty. Inspector Kussaka gave his testimony on June 9, E 1980, that is to say, before s. 27 of the Evidence Act, 1967, was amended by s. 4 of the Evidence (Amendment) Act, 1980. Although it was enacted on May 21, 1980, the latter Act did not come into force until December 1 of that year, see Govt. notice No. 172/80. Before the amendment, save as provided for in s.31 of the Evidence Act, no F confession made to a police officer could be proved against a person accused of an offence. The testimony of Inspector Kussaka touching upon the alleged confession could be admissible, if at all, only under s.31 of the Evidence Act. By the section it is enacted that: G

> When any fact is deposed to as discovered in consequence of information received from a person accused of any offence in the custody of a police officer, so much of such information, whether it amounts to a confession or not, as related distinctly to the fact thereby discovered, H is relevant (the emphasis is mine).

Save as for the addition of the words "provided that", this section is in pari materia with its predecessor, s. 27 of the Indian Evidence Act, 1872, which was the subject of I discussion in several cases. In Kenyarithi s/o Mwangi (1956) 23 E.A.C.A. 422 a case

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SAMATTA J

originating from the Supreme Court of Kenya, the Court of Appeal for Eastern Africa A held that the section operated as provision to section 24,25 and 26 of the same Act, i.e, the Indian Evidence Act. It seems to me that there is no reason for taking a different view with regard to s.31 of the Evidence Act, 1967, when read in relation to s. 27, 28 and 29 of the same legislation

before the Evidence (Amendment) Act, 1980, came into B force. If what I have just expressed is correct, it follows that the confession allegedly made by Hassani Hokororo could, subject to the limitation imposed by s.31 of the Evidence Act, be admitted in evidence. What is that limitation? The answer would appear to be, that it is not the whole of the statement made by the accused in C consequence of which the fact is discovered which is admissible; it is only so much of the statement which distinctly relates to the fact discovered. In other words the information and the fact alleged to have been discovered should be connected with each other as D cause and effect. Any portion of the information which does not satisfy this test should be shut out of the case. It should be pointed out, for the avoidance of doubt, I think, that the word "discovered" is used in the section to mean physically discovered and not mentally discovered. The rationale behind the section is that if a fact is actually E discovered in consequence of information given, some guarantee is afforded thereby that the information was true, and accordingly can be safely allowed to be given in evidence: see R. v Tomu s/o Nuglombe (1943) 10 E.A.C.A. 54. Applying the test I have described in this judgment, it must be correct to say that the portion of Hassani Hokororo's statement that he and his co-accused shot at Mr. Karatela's motor vehicle F was not admissible in evidence since it did not lead to the discovery of the firearm. It is the other portion, that is, the one to the effect that he had hidden a firearm at some place which led to such a discovery.

I can see no reason on the record of the case why Inspector Kussaka should have G manufactured evidence against the appellant. It is not without significance that the inspector's evidence dovetails with that given by one of the policemen who accompanied the inspector, Det. Constable Richard (PW7). Like the learned trial magistrate, I am satisfied beyond reasonable doubt that the appellant Hassani Hokororo did tell the H inspector that he and his co-accused had hidden the firearm was somewhere and that he did lead the police team to the spot where the firearm was discovered buried in the ground. According to the ballistics expert's opinion, which the learned magistrate accepted - and in my view rightly accepted - two of the spent cartridges had been I discharged from the firearm. Taking all

this evidence into consideration, and bearing in mind that the attempted attack on the A occupants of Mr. Karatela's vehicle took place only some hours before the hounds of justice discovered the firearm, the conclusion that the appellant Hassani Hokororo must have been a party to the attempted robbery is, in my judgment, ineluctable. It is not B possible, in my view, to entertain any reasonable doubt on that point.

I turn now to the appeal against conviction lodged by the other appellant, namely, Ally Fundi. In arriving at the opinion that this appellant was also guilty of the attempted robbery the learned trial magistrate brought s.33 (1) of the Evidence Act, 167, into play. C Certain rules regarding the application of this section are, I think, now fairly well-settled. The only way in which a confession can be taken into account is as evidence: see Rex v Wadingombe bin Mkwanda alias Anton and two Others (1941) 8 E.A.C.A. 33. Under the section the confession by accused person can only be used to D lend assurance to other evidence against his co-accused, evidence which

falls short by a very narrow margin of the standard of proof necessary for a conviction. It cannot be used as the basis of the prosecution case: see Gopa s/o Gidamebanya and 5 others v E Regional (1953) 20 E.A.C.A. 318; Karaya Njonji and Others v R. (1953) 20 E.A.C.A. 324. The justification for the principle underlying the section is that the fact of full-self-implication by an accused person serves as some sort of guarantee for the truth of the accusation, contained in the confession, against the other or other's: see Mussa F Luinda v R. [1960] E.A. 470. But I will, I hope, be excused for stating the obvious, namely, that the section can be brought into play only if the accused's statement amounts to a confession. Hassani Hokororo's statement to the effect that he and his co-accused (which term includes Ally Fundi) had hidden the firearm somewhere cannot by any G stretch of imagination be described as a confession. It follows naturally as day follows night that the appellant's (Hokororo's) statement could not in law be taken into consideration against Ally Fundi or the other accused person, Hamisi Abdarahmani, for that matter. It is true that the two accused persons were found in the company of H Hassani Hokororo only a few hours after the evil event. But, as has been stated many times before by this court, a mere opportunity to commit an offence cannot be the basis for convicting an accused person. If the law were otherwise, no one in this country would have been safe. There was a grave suspicion that the two accused persons were I parties to the attempted robbery, but suspicion, however grave it may be, cannot be a substitute for proof in a court

of justice. For the reasons I have given, I allow Ally Fundi's appeal, quash the conviction A and set aside the sentence imposed thereon. Unless his personal liberty is otherwise lawfully assailed, he should be set at liberty forthwith. Exercising my revisional jurisdiction, I quash Hamisi Abdarahamani's conviction and set aside the sentence imposed thereon. He should be released from custody forthwith unless he is otherwise B lawfully detained.

I turn now to Hassan Hokororo's appeal against sentence. The learned trial magistrate, in sentencing the appellant, held that the minimum sentence prescribed by law for the offence of attempted robbery is seven years' imprisonment. With unfeigned respect, I C disagree. The correct proposition is that the minimum sentence is three years' imprisonment: see s. 4(a) of the Minimum Sentences Act, 1972, which should be read together with the twelfth paragraph of the First Schedule to the said Act. Seven years' imprisonment is the minimum sentence for robbery and not for attempted robbery. D Taking into consideration that the use of firearms in the perpetration of robberies is on the alarming increase in the country and that it was by sheer luck that none of those who were in Mr. Karatela's vehicle was physically harmed, I think a sentence of five years' imprisonment would have met the justice of the case. The sentence of seven years' E imprisonment is reduced accordingly. Save as to this reduction, the appeal lodged by Hassani Hokororo is dismissed.

F Order accordingly.

G

[zRPz]REPUBLIC v ABDALLAH SELEMANI 1983 TLR 215 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

August 12, 1983
CRIMINAL REVISION 21 OF 1983
Flynote
Criminal Practice and Procedure - Sentences - Power of confirmation of sentence H -Whether it can be exercised in relation to sentences illegally imposed.
Criminal Practice and Procedure - Sentences - Enhancement of sentence - S.329 of the I Criminal Procedure Code. Cap. 20 - Order of enhancement not to prejudice accused.
1983 TLR p216
LUGAKINGIRA J
Criminal Law - Minimum Sentences Act - Whether offence against unregistered Ujamaa A Village could be brought within the Minimum Sentences Act. 1972.
-Headnote
The accused pleaded guilty to a charge of stealing by servant and was on conviction B sentenced to six years' imprisonment. He stole Shs. 43,921/05 the property of an Ujamaa village of which he was an accountant. The record was forwarded to the High Court for confirmation of sentence. The matter also attracted revision which was accordingly directed. C
Held: (i) Where there is no indication whether an Ujamaa village was registered, offence against the same cannot fall within the ambit of the Minimum Sentences Act, 1972:

(ii) the court's power of confirmation of sentences can only be exercised in D relation to sentences legally passed; an illegality cannot be confirmed;

(iii) enhancement of sentence should not be made to the prejudice of the accused person, for example, where he cannot be given an opportunity to be heard.

Case Information
Order accordingly. E
No case referred to.
[zJDz]Judgment
Lugakingira, J.: The accused pleaded guilty to a charge of stealing by servant and was F on conviction sentenced to six (6) years imprisonment. He stole Shs. 43,921/05 the property of an ujamaa village of which he was an accountant. After sentencing, the trial Senior District Magistrate forwarded the record here for confirmation of sentence. I G thought the matter attracted revision and directed accordingly.
Under s.7(1) (a) of the Criminal Procedure Code the maximum sentence which may be imposed by a subordinate court is imprisonment for five years, unless otherwise stated. However, where a court convicts a person for a scheduled offence, it may, if such H sentence is authorised by law, pass a sentence of imprisonment for such offence for a term not exceeding eight years. In the instant case there was no indication in the facts adduced or in the sentencing remarks whether

the ujamaa village was registered so as to I bring the offence within the ambit of the Minimum Sentences Act. It is only on the file cover that I see the entry "Under the Minimum Sentences
1983 TLR p217
Act No. 1/72", but that alone does not assure me of the status of the village. It seems to A me, therefore, that the trial magistrate's powers in this case were limited to five years.
I feel, quite perfectly, that the sentence imposed in this case was merited even if in excess of the trial magistrate's power of sentencing. The question is whether it can be B confirmed. It appears to me, rather regrettably, that the answer must be in the negative. I think I am correct in saying that this court's power of confirmation can only be exercised in relation to sentences legally passed. An illegality can not be confirmed. I have also turned to the provisions of s. 329(1) (a) of the Criminal Procedure Code and considered C whether, in the alternative, the sentence may be sustained by way of enhancement. But this provision has to be read with subsection (2) which stipulates that no order may be made to the prejudice of an accused person unless he has had an opportunity of being heard. Enhancement is certainly to the prejudice of an accused and in this case it has not D been possible to give the accused the opportunity to be heard. All in all, I cannot find my way to sustain the sentence.
For these reasons I will, albeit reluctantly, reduce the sentence to five (5) years' imprisonment. It is so ordered. E
Order accordingly.
1983 TLR p217
F
[zRPz]SARAH MALOGO v WILLIAM VAHAYE 1983 TLR 217 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

August 14., 1982
(PC) CIVIL APPEAL 57 OF 1981 G
Flynote
Family Law-Affiliation - Paternity and custody of a child - Whether for paternity to be effective it must be announced at time of birth and not merely during pregnancy.
Family Law - Legitimation - Whether legitimation of child must necessarily be before it was H weaned.
-Headnote
The respondent sued in the Primary Court for paternity and custody of a female child born to the appellant on 8th June, 1976. He was successful. The appellant's first appeal I to the District Court was dismissed and she further appealed.
1983 TLR p218
LUGAKINGIRA J

Held: (i) Giving the law its true intentions, once a woman declares a particular man to be A responsible for her pregnancy, she cannot afterwards be heard to represent otherwise;

(ii) where the intransigence of the mother makes the putative father unable to legitimate a child before it was weaned, the father should be allowed to legitimate the B child even after it has been weaned.

Case Information

Appeal dismissed.

Case referred to:

Halifa v Hadija [1971] HCD n.1 C

G. Alimwike for the appellant.

[zJDz]Judgment

Lugakingira, J.: The respondent sued in the Primary Court for paternity and custody of D a female child born to the appellant on 8th June, 1976. He was successful. The appellant's first appeal to the District Court was dismissed and she further appealed.

There was evidence which was accepted by both courts below that when the appellant E became pregnant she announced this fact to the respondent, and even to her relatives, naming the respondent as the person responsible. And even after the birth of the child word was sent to the respondent who sent gifts which were accepted, and subsequently the appellant declared that the child was not his. That was the cause of these F proceedings.

Mr. Alimwike who appeared for the appellant in this court submitted that for the announcement for a father to be effective it must be after the birth of the child and not merely during pregnancy. I am unable to agree, and I do not think that the Declaration of Customary Law G.N. 276/63, seeks to draw such tenuous distinction. I am of the view G that, giving the law its true intention, once a woman declares a particular man to be responsible for her pregnancy, she cannot afterwards be heard to represent otherwise. On similar facts in Halifa v Hadija [1971] HCD n.1, it was similarly held that where a H putative father publicly makes customary payments in respect of a pregnant fiancee, the mother cannot afterwards deny paternity. And as we have seen the present case was not founded on a mere announcement during pregnancy. The birth of the child was also reported to the respondent; he sent gifts which were accepted, and it is no less important I to add, even the child was on a number of occasions handed over to the respondent's mother to look after. On

all these facts, the lower courts were entitled to find, as they did, that the respondent was A the child's father.

Another point raised by Mr. Alimwike was about legitimation. He argued that, assuming the respondent was the father, he ought to have legitimized the child before it was weaned. That indeed is the law where the father does not elect to marry the mother. B However, there was overwhelming evidence in this case that on three occasions the respondent sought to legitimize the child by payment of the customary "ndima" but on all those occasions his efforts were frustrated by the appellant's brother. She was either C demanding this or that or saying that the payment should await the appellant's brother. We do not know where this brother, one Mussa,

is and there is no indication that he has ever turned up. The respondent can therefore not be blamed for the prevailing stalemate. It follows, in my judgment, that since the stalemate was occasioned by the intransigence on the appellant's side, it operated to excuse the respondent from the apparently strict D provisions of para. 181B of G.N. 279/63. I am of the opinion that he can legitimize his child even now. He can do so by the payment of shs. 100/= provided for in the said paragraph or two cows as previously indicated by the appellant's parents.

The appeal thus fails and is dismissed with costs. In view of the appellant's bad faith and E craftiness, to which even the learned trial magistrate referred, I direct that the appellant shall forthwith and peacefully hand over the child to the respondent, if she has not already done so.

F Appeal dismissed.

1983 TLR p219

G

[zRPz]BERABERA UJAMAA VILLAGE v ABUBAKARI BURA 1983 TLR 219 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

August 6, 1982

(PC) CIVIL APPEAL 10 OF 1982 H

Flynote

Civil Practice and Procedure - Suit against Ujamaa Village - Village leaders sued- Whether proper.

Civil Practice and Procedure - Ujamaa village - Liability of village for acts of its agents. I

1983 TLR p220

LUGAKINGIRA J

-Headnote

The appellant, an Ujamaa Village, through its leaders, destroyed respondent's growing A crops on his shamba. They were ordered to compensate the respondent for the damage. They appealed against the order on the ground that the amount of compensation awarded against them was excessive. B

Held: (i) It is a fundamental human right that no man shall be deprived of his property without adequate compensation;

(ii) an ujamaa village is liable for actions of its officers.

Case Information

Appeal dismissed. C

Cases referred to:

1. Bukenyera v Malayarubusi [1969] HCD n. 190
2. Bakari v Kalumuna [1970] HCD n. 229 D

[zJDz]Judgment

Lugakingira, J.: In November 1978 the appellant's government formally resolved and took over the respondent's shamba within Berabera village. Its agents promptly destroyed the growing crops in the shamba, including cassava, castor-oil plants, E bananas, etc. The respondent valued his loss at Shs. 4,500/= and commenced action in the Primary Court at Bareko to recover the same. This was in Civil Case No. 95/78. He was successful and the court awarded him the sum claimed together with costs.

The action had been instituted against one Mohamed Hasare and one Labay Juma, the F chairman and secretary respectively of the appellant. When the matter came to the attention of the District Court of Kondoa the District Magistrate there decided to revise the proceeding. He did so in Civil Revision No. 2/79 and quashed the proceeding. He stated that the appellant was incorporated under Act No. 21/75 and therefore capable G of suing and being sued in its name. He accordingly advised the respondent to proceed against the appellant rather than its individual officers. The respondent heeded the advice and commenced fresh action in the same primary court claiming the same relief. He was again successful. The appellant unsuccessfully appealed to the District Court and further appealed. H

I am satisfied after a careful study of the record that the appellant through its agents committed the trespass and waste complained of. Even in the memorandum of appeal before this court, the appellant does not seek to contest these facts. It only argues that the respondent exaggerated the degree of his loss. I think that this is an afterthought, I seeing as I do that it is the first time this issue is

being raised. Besides, in arriving at its decision, the trial court visited the shamba in A question and made on the spot observations. I have no reason to differ with the court which had that privilege. I therefore reject the appellant's argument. Further, in case the question of jurisdiction should be of interest to the appellant, I would state that I do not subscribe to the view that the tort of trespass has no cognizance in customary law and B therefore not maintainable in primary courts. Trespass is as old as man. Long before the colonisers came trespasses on the person and property were being committed in the villages of the same nature as are being committed today. I have yet to be told that aggrieved parties had no remedy in the pre-colonial days. Indeed the decisions of this C court have never questioned the jurisdiction of primary courts in matters arising out of trespass. Bukenyera v Malayarubusi [1969] HCD n.190 and Bakari v Kalumuna [1970] HCD n. 229 are two examples in this regard. I hold, therefore, that the present D proceeding was properly commenced in Primary Court.

It is not desirable to remind the appellant generally, and its enthusiastic officers in particular, that a person's lawful property cannot be seized or destroyed without lawful cause. Village governments were instituted to stimulate rural development; they were not E instituted to destroy. To that end, village governments were given the duty and power to ensure that every able-bodied resident was allotted a piece of land for his subsistence and economic activities. It may perhaps be of assistance if I referred to the express provisions of the law. G.N. 168/75, para 5(2) provides as follows: F

(2) subject to availability of arable land, the Village Council shall (my emphasis) allot a piece of farmland to every kaya in the village according to need and ability to develop it. The Village Council shall have power to determine the structural pattern of farms in the village and the use G thereof.

The law is clear; every Village Council is obliged to allot a piece of farmland to every kaya. That is a mandatory requirement. It is, therefore, ironical, and contrary to the spirit H of the law, for the Village Council to deprive a kaya of farmland, and developed farmland at that. The respondent already had a piece of farmland, it was situated within the village, it was fully developed according to the accepted evidence. It was then unlawful for the appellant to take it from him in the manner it purported to do. There is I also a corollary to the above. A corresponding duty is cast upon every resident to

obtain a piece of land in the village. This is set out in para 7(2) of the Directions A aforesaid which provides as follows:

(2) Every resident of a village shall have the duty to obtain, and shall be entitled to be allotted, a piece of land in the village on which he shall carry on economic activities, whether on an B individual basis or in association with other resident.

That too is quite clear. Not only is a resident obliged to obtain a piece of land but he is also entitled to one. Happily, the respondent already had such piece of land and had C economically worked it. He was therefore not a burden to the appellant and had fulfilled the obligations imposed upon him by the law. But ironically again the appellant took that land away. No reason whatsoever was given by the appellant for this action. I can well D surmise that it was an act of envy and covetousness. But that is not the attitude expected of a village government. The appellant's action was therefore an infringement upon the respondent's right and an unfortunate assault upon the law of this country. To dramatise its ill-intentions the appellant even failed to give alternative land to the respondent. Nothing more could demonstrate the appellant's ignorance of the objectives E for which it was set up.

Finally, it is a fundamental human right that no man shall be deprived of his property without adequate compensation. That right is inalienable and is recognised by every F civilised society including our own. Some societies insist not merely on adequate compensation but adequate and prompt compensation. In theoretical terms the right to compensation may be traced to the concept of ownership. Mwalimu's words on this subject have considerable force and are worth quoting at length: G

From where does a man derive the right to possess something, and to refuse the whole world this right of ownership? This right originates from only one factor; the fact that man is nobody's property. He owns himself, his health, his intellect, and his ability cannot be someone else's property.. H

When I use my energy and talent to clear a piece of ground for my use it is clear that I am trying to transform this basic gift from God so that it can satisfy a human need.. this I land is not mine,

but efforts made by me in clearing the land enable me to lay claim of ownership over the cleared piece of ground.. by
1983 TLR p223
clearing that ground I have actually added to its value.. whoever then takes this piece of A ground must pay me for adding value to it through clearing it by my own labour. (Freedom and Unity, (1967), pp. 53-54).
Leaving alone the philosophical considerations, it is trite law that every man is entitled to B his lawful property. Whoever takes or destroys it in circumstances amounting to trespass must make good the injury caused thereby. The gentlemen assessors who sat with the learned trial magistrate were of the same view. They even found that the prompt destruction of the crops was deliberately done to avoid payment of compensation. They C continued:

...serikali ya kijiji haikuwa na mapatano yoyote na mdai; aliona anaonelewa kuharibiwa chakula chake bila ya sababu yoyote. Anapatia riziki yake kwa mimea hiyo; hivyo katika shauri D hili mdai ameonyesha ushindi. Serikali ya kijiji cha Berabera wamlipe fidia aliyodai..

I agree; and for all that I have said, I dismiss the appeal with costs. E
Appeal dismissed.
1983 TLR p223
F
[zRPz]MARIAM ALLY PONDA v KHERRY KISSINGER HASSAN 1983 TLR 223 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

October 25, 1983
(PC) MATRIMONIAL APPEAL 1 of 1983 G
Flynote
Civil Practice and Procedure - Assessors - Trial commenced with two assessors, then trial adjourned - On resumption only one assessor present - During summing and judgment there were two assessors - Whether irregularity curable. H
-Headnote
At the commencement of the proceedings two assessors sat with the magistrate. The suit was adjourned and when it resumed there was only one assessor. In the final stage of the proceedings, that is summing up and judgment, there were two assessors again. The records did not show whether the assessor who appeared in the final stage was the same I one as the one who was present at the
1983 TLR p224
LUGAKINGIRA J
commencement of the proceedings. The impropriety of the procedure was challenged on A appeal.

Held: (i) An assessor who has absented himself for part of the trial cannot afterwards be permitted to participate in the determination of the proceedings; B

(ii) where an assessor is present at the commencement of any proceeding and is subsequently unable to continue to perform his functions as an assessor, the magistrate may continue to hear and determine the proceeding with the remaining assessor;

(iii)assessors in the primary court have equivalent and complementary powers to C those of the magistrate.

Case Information

Order accordingly.

Case referred to: D

1. Samwel v Marcel [1967] HCD n. 333
2. Rajabali v Curtis [1968] HCD n. 120
3. Desai v Varsama [1957] E.A. 351
4. Ndatuya v Kisukari [1975] L.R.T. no. 66 E

[zJDz]Judgment

Lugakingira, J.: The appellant successfully petitioned for divorce in the Urban Primary Court, Dodoma, but the decree was overturned by the District Court on appeal by the respondent. She therefore appealed here.

Unfortunately, I cannot go into the merits of the appeal. There was an irregularity in the F proceedings of the trial court which I think went to the root of the entire trial. The trial magistrate, whose name I cannot decipher and whose hand-writing generally can be read by few, sat with two unnamed assessors at the commencement of the trial. The G appellant and her witnesses gave evidence in the presence of these assessors and the trial was adjourned for hearing the defence. At the resumed hearing, some three days later, the trial magistrate recorded "Washauri wapo", again without naming them. The truth is that there was a single assessor and the respondent and his witnesses gave H evidence. The proceeding was then adjourned for summing up and judgment. However, at the summing up and judgment there were two assessors whose names, again, do not appear and these gave their opinions. In other words, one of the assessors - we do not know who - gave his opinion in the case although he never heard the defence. The I respondent raised the matter in his appeal to the District Court, but the learned appellate magistrate gave it no consideration,

let alone a mention. In fact he stated that "there (was) not much substance to abstract A from (the) memorandum of appeal".

I think the irregularity was incurable. Section 8(3) of the Magistrates Courts Act, 1963 provides that where an assessor is present at the commencement of any proceeding and is subsquently for any reason unable to continue to perform his functions as an assessor, B the magistrate may continue to hear and determine the proceeding with the remaining assessor or assessors. This, in my view, implies that an assessor who has absented himself for part of the trial cannot afterwards be permitted to participate in the determination of the proceeding. Indeed it is

against elementary rules of natural justice C that a man should sit in judgment over a matter he is not seized with. It is also dangerous to permit such a situation considering that decisions in primary courts proceed on the majority basis. The intruding assessor might be the most articulate and could carry the day. In such an event there would be a miscarriage of justice. D

I turn to s.32(2) of the Act aforesaid to reassure myself of the position. It provides, inter alia, that no decision or order of a primary court or a District Court shall be reversed or altered on appeal or revision on account of any error, omission or irregularity in the E proceedings before or during hearing, unless such error, omission or irregularity has in fact occasioned a failure of justice. I believe, however, that this provision is not intended to cure irregularities such as the one we are considering. I think that the provision is aimed at technical errors, omissions and irregularities which do not go to the jurisdiction of the court. Absence of jurisdiction means absence of a lawful trial and I apprehend that F the court destroys its jurisdiction the moment it is unlawfully constituted.

In the case of Samwel v Marcel [1967] HCD n.33 Mustafa, J., (as he then was) declined to consider the issue of jurisdiction, although apparent on the record, because G neither party had raised it. That case is clearly distinguishable from the case before me because, in the instant case, the respondent raised the issue at the first available opportunity. Even though, in Rajabali v Curtis [1968] HCD n. 120 it was held that jurisdiction cannot be conferred by consent of parties. And although in that case this H court went to uphold the divorce granted by a primary court it was because the court was merely "doubtful" whether the primary court had jurisdiction and it was also for "practical" reasons which do not obtain in the instant case. Jurisdiction is thus a fundamental issue the absence of which cannot be cured by the application of s.32(2). In this connection I think it is I

sufficient to quote from Desai v Varsama [1967] E.A. 351 where the late Hamlyn, J., A said, at p. 354:

> I cannot agree that this section bears in anyway on the question of lack of jurisdiction in the B primary Court. If there was no jurisdiction, then the whole of the proceedings were a nullity and the appellant cannot pray in aid this provision of the law. Lack of jurisdiction goes far beyond any "error', omission or irregularity', nor can it be regarded as mere technicality. There is in law nothing to be reversed or altered and there is a complete absence of any material from which C an appeal can be heard.

I am satisfied that the trial court lost its jurisdiction the moment it became unlawfully constituted. This was not a technical error or irregularity for, in law, there was no lawful D tribunal. I am not saying, however, that its decision was necessarily bad. Perhaps I am more inclined to its decision than that of the District Court which even overstepped its powers by ordering the parties to reunite. I am saying that there was no decision in law E and, therefore, no material upon which to determine the appeal on merits.

A word is also necessary on the decision of the trial magistrate not to name the assessors. This is perhaps a curable error but it is still significant. First, on the administrative side, I do not know

how the assessors could claim and be paid F allowances without appearing to have attended. Secondly, and more pertinently, assessors in the primary court are not mere advisers as elsewhere. Their powers in a trial and the powers of the magistrate are almost equivalent and certainly complementary. It is then not out of courtesy or compliment that their identities appear on the record; it is because of the responsibility they share in the court's decision. Further, an appellate G court would always desire to satisfy itself that the proceedings below were conducted with due regard to law and procedure. That makes it desirable, if not necessary, for the record to leave no opportunity for possible uncertainty. There have been instances indeed when, in primary courts, assessors have been changed in the most irregular way. H The result of this is vitiated proceedings. But such a situation would never be evident in the absence of the assessors' names. Is it not interesting, for instance, that in the instant case the magistrate recorded "Washauri wapo" when in fact there was only one? I find it I difficult to believe that there was any problem with grammar, but I will be excused for saying that this was an instance of patched up

work. I would not wish to believe that this has been the trend. It may finally be A mentioned that the appellate court may at times wish to seek clarification on the views expressed by the assessors. This would particularly arise where a point of customary law is involved, and it did arise in Ndatuya v Kisukari [1975] LRT n.66. There would be no easy way of realising this if the assessors' names are withheld. It would be a risk to B count on the memory of the trial magistrate, assuming, of course, that the magistrate himself can be located. All in all, therefore, the assessors' names must appear on the record.

For the reasons I have endeavoured to give, I quash the proceedings and set aside the judgments and orders of the lower courts. The appellant is at liberty to file a fresh C petition at no further cost if it be in the primary court. I make no order as to the cost of this appeal.

D

[zRPz]RAMADHANI OMARI v FATUMA MAHUMBI 1983 TLR 227 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

September 8, 1983
(PC) CIVIL APPEAL 3 OF 1983 E
Flynote
Family Law-Divorce - Custody and maintenance of children - Whether party entitled to maintenance for a burden wilfully incurred. F
-Headnote
The parties had been married in 1972 and cohabited until 1974 when the respondent deserted the appellant taking along with her one child of their marriage. Two more children were

begotten with the appellant during the period of separation. In 1982 the respondent petitioned for divorce which was granted on proof of the longevity of the G separation. The custody of the two elder children was given to the appellant. The youngest was left to the respondent and the appellant was ordered to pay maintenance for it. The respondent subsequently instituted proceedings claiming compensation of Shs.4,000/= for having maintained those children. The respondent lost in the trial court, H but succeeded in a subsequent appeal to the District Court. From that decision the appellant brought this appeal.

Held: A woman cannot claim or receive compensation for maintaining a child she has I wilfully removed or kept from the father's custody.

1983 TLR p228

LUGAKINGIRA J

Case Information

Appeal allowed. A

No case referred to.

[zJDz]Judgment

Lugakingira, J. The parties herein married in 1972 and cohabited until 1974 when the B respondent left the appellant. They then had one child which the respondent took along. In the course of the separation she adulterously begot two more children which were acknowledged to be the appellant's. In 1982 she petitioned for divorce. It was granted due to the longevity of the separation but the trial court held that the respondent C was guilty of desertion. In granting divorce the court also granted custody of the two elder children to the appellant. The youngest was left to the respondent and the appellant was ordered to provide maintenance for it. D

Soon after the conclusion of the divorce suit, and it seems consequent upon the respondent being deprived of the custody of the two elder children, the respondent commenced the present proceedings claiming compensation of Shs. 4,000/= for having maintained those children. The trial court dismissed the claim, observing that she was the guilty party in the E break up of the marriage. She appealed to the District Court. That court took a different view and did so it the following terms:

takribani, matunzo wakati familia iko kukeni ni juu ya mume bila kujali ni nani F mkosa(ji) au mtu aliyesababisha utengano huo.

The court then went on to observe that the obligation to maintain children rested on both G parents and, therefore, awarded the respondent Shs.2,000/=, half the amount she had claimed. From that decision the appellant brought this appeal.

I should perhaps first say a word in passing on the respective duties of parents with regard to the maintenance of their children. It seems to me that in normal circumstances H the duty to maintain infant children is the duty of the father alone. I believe that this is the correct interpretation to be put on subsection (1) of s. 129 of the Law of Marriage Act, 1971. For that duty to shift to the mother, wholly or in part, it seems that the conditions set out in subsection (2) must arise, namely, the father must be dead or his I whereabouts must be unknown or he must be, and to the extent that he is, unable to provide maintenance. I take that view having regard to the fact

that the provisions of subsection (2) are expressed to be subject to the provisions of A subsection (1). It is therefore suggested that except where the provisions of subsection (2) can be brought into play, there would be no legal justification for apportioning liability.
The question in the instant case is whether on the facts and circumstances as found by B the trial court the respondent was entitled to any compensation. The authorities and the statutes appear silent on the matter. I think, therefore, that equity or common sense should be able to provide the answer. It does not occur to me that customary law lacks a concept the equivalent of volenti non fit injuria or la kujitakia halina majuto. There are strong reasons to hold that such a concept is recognised and, by way of C illustration, I need go not further than refer to para 74, G.N. No. 279 of 1963, which bars maintenance to a divorced woman where the divorce is brought about by her own guilt. The principle behind this is that a party should not be rewarded for his own wrong. D It similarly follows, in my view, that a woman cannot claim or receive compensation for maintaining a child she has wilfully removed or kept from the father's custody, and I therefore differ with the learned appellate magistrate in his statement quoted above. To put it differently and shortly, a woman should not claim or receive compensation for a E burden wilfully incurred. It was on that principle that the Primary Court reached its decision, although citing irrelevant provisions. Since the respondent was a wilful deserter, and took or kept the children in those circumstances, that decision was manifestly sound.
I will accordingly allow this appeal, as I do, and set aside the award of the District F Court. Since I do not know the respondent's means, there will be no order as to costs.
Appeal allowed.

A
[zRPz]J. MKUKI AND ANOTHER v MBARA M. HATIBU 1983 TLR 230 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

June 4, 1984
CIVIL APPEAL 1 OF 1981
Flynote
Tort-Interference with contractual relation - Violation of economic interests without B justification.
Contract - Interference with economic interests of a licensee - A third party interfering with licensee's legal contractural right - Actionable. C
-Headnote
The respondent using a friend's licence engaged in lumbering in the appellants' village forest. The appellants stopped him and confiscated 4 saws and 40 pieces of timber. The respondent

successfully sued the appellants in tort in a Resident Magistrate's Court. D The trial magistrate without identifying the tort allegedly committed by the appellants found the claim fully established. On appeal the appellants complained against the decision of the resident magistrate arguing that they acted lawfully in interfering with the acts of the respondent. E

Held: (i) (Obiter) Assuming the acts of the appellant were unlawful: (a) the removal and taking of the timber which were never recovered amounted to trespass and conversion; (b) the confiscation of the saws amounted to trespass to chattels, but since there was a F prayer for their restoration the respondent's action was also founded in detinue; (c) stopping of respondent from further lumbering amounted to a tort of interference with contractual relations;

(ii) the respondent's action was based on an alleged interference with a supposed contract, and the other apparent wrongs (trespass, conversion and detinue) G were manifestations of it and were inseparable as such they cannot found a separate cause or causes of action;

(iii) the acts of the appellants cannot be unlawful unless the respondent was exercising a legal right;

(iv) the activity of the respondent in cutting and removing timber from the forest H at Minyughe was unlawful because he had no licence; thus the appellants' act of stopping him was a lawful act;

(v) the respondent's cause was not actionable on the ground that ex dolo malo non oritur actio.

Case Information

Appeal allowed. I

1983 TLR p231

Cases referred to: A

1. D.C. Thompson & Co. Ltd. v Deaking [1952]2 All E.R. 361.
2. Croffer Hand Woven Harris Tweed Co. Ltd. v Veitch [1942]1 All E.R. 142.
3. Rogers v Rajendra Dutt (1860) 13 Moo. P.C. 209.
4. Muhuri v Kiritu [1969]E.A. 232. B

1983 TLR p231

LUGAKINGIRA J

A. Mukri for the appellants

[zJDz]Judgment

Lugakingira, J.: This old case arose from a rancorous incident in a forest at Minyughe in Singida district. For some time residents of Minyughe village had become aware of C what they considered as illegal lumbering in what they also regarded as a village forest. On 20.9.79 the village government met and discussed the issue and resolved to put an end to this activity. On 23.9.79 a group of villagers, led by the first appellant, the village manager, proceeded to the forest and there found the respondent's employees busy D felling trees and sawing them into timber. In a bitter encounter the villagers ordered the workers to stop and even confiscated four of their saws. The workers went away and reported the incident to the respondent. It was claimed that they left behind 290 pieces of sawn timber. Sometime later it is not clear when -

the respondent went for the timber E but allegedly found 250 pieces only. There was an apparent loss of 40 pieces and the respondent's case was that they were taken by the appellants.
On 1.10.79 the village government met again and summoned the respondent. On his F arrival he was required to pay village dues for the timber in order to redeem the saws. (In fact the appellants said there were 390 and not 290 pieces of timber). The respondent refused and commenced action in the Resident Magistrate's court of Singida claiming special damages amounting to Shs. 13,530/= (his apparent investment), the return of saws and costs of the suit. In a lengthy analysis suffused with Latin phrases the G trial Resident Magistrate found the claim fully established and entered judgment for the respondent. The appellants were dissatisfied and brought this appeal through learned counsel Mr. A.Q.A.R. Mukri of WASHIRIKA. The appeal finally proceeded to hearing after countless adjournments but the respondent did not appear although duly H served.
I desire first to ascertain the legal basis of this claim. I assume this burden in view, especially, of the unprofessional nature of the pleadings and even of the prosecution of the case. Undoubtedly, the claim was founded in tort but one cannot proceed, as the trial Magistrate did, without identifying the tort or torts relevant to the facts. In precise I term a tort is

the unlawful invasion or denial of a legal interest. It therefore involves a wrong-doing on A the one part and a grievance on the other. From the evidence of this case I surmise that three matters were the subject of complaint. First, the appellants stopped the respondent's employees, in effect the respondent himself, from further lumbering; secondly, they were alleged to have removed and taken away 40 pieces of timber which B were never recovered; thirdly, they confiscated four saws. I think the law is settled and clear as regards the second and third acts. The removal and taking of the timber which were never recovered amounted to trespass and conversion. The confiscation of the saws similarly amounted to trespass to chattels, and since there was a prayer for their C restoration we can say that the respondent's action was also founded in detinue. For the avoidance of doubts, these statements proceed on the assumption that the appellant's acts were unlawful.
The act of preventing further lumbering presents some difficulty. This, again on the D assumption that it was unlawful, amounted to a denial of an interest in the sense that the respondent was denied the right to fell and remove timber. This denial of an interest did not as such involve physical interference with the respondent's person, land or property. In short there was no direct injury. It is perhaps one of those situations which under the E English common law was classed as trespass on the case or, simply, case, but I do not have to go into that for the law has sufficiently developed to dispense with the uncertainty of a mouldy doctrine. In the instant case the respondent claimed to have had a valid licence issued by the department of natural resources under the Forests Ordinance, Cap. F 389. It seems to me, therefore, that the proper way to look at the matter is to regard the appellants' act as an interference with a contract. The contract arises this way: that in consideration of the fees paid to the Government the licensee was entitled to fell and remove a certain quantity of timber. I will come to the

specifics of this formulation at the appropriate stage later. It suffices to observe here that the law recognises the tort of G interference with contractual relations and this rests on the principle that the violation of economic interests without justification is tortious.

Interference with a contract may take various forms, e.g. by persuading or inducing or H procuring one of the parties to the contract to break it. A similar situation may be occasioned, and it would be actionable interference, if a third party does an act which, if done by the contractor, would amount to a breach of the contract. In the case before me if the licensing authority had without justification done what the appellants did or had in similar circumstances revoked the licence, that would have amounted to a breach of I contract giving rise to a cause of action. On that

footing it becomes actionable for a third party similarly to interfere with the use of the A same licence. Similar propositions are to be found in a number of English decisions but I need only refer to one. In D.C. Thompson & Co. Ltd. v Deakin [1952]2 All E.R. 261, JENKINS, L.J. said, at p. 378 (quoting the relevant parts only): B

> Again, so far from persuading or inducing or procuring one of the parties to the contract to break it, the third party may commit an actionable interference with the contract ... if ... he does an act which, if done by one of the parties to it, would have been a breach .... Further, I apprehend that an actionable interference would, undoubtedly, be committed if a third party ... C placed physical restraint on one of the parties to the contract, so as to prevent him from carrying it out.

In the instant case, therefore, the position as I see it is that the respondent's action was D based on an alleged interference with a supposed contract. The other apparent wrongs, that is, trespass, conversion and detinue, arising directly as they do from the alleged interference, were manifestations of it and are inseparable. They cannot therefore found a separate cause or causes of action. E

The foregoing, however, is one side of the coin. As stated earlier, a tort is the unlawful invasion or denial of a legal interest. In other words, a cause of action will not arise unless the action complained of is unlawful in the sense that it interferes with a right recognised by law. In this case the act of the appellants cannot be unlawful unless the F respondent was exercising a legal right; for if he was lumbering unlawfully the act of the appellants in stopping him cannot be unlawful and any injury suffered cannot be a legal injury. In the words of Viscount Simon, L.C. in Croffer Hand Woven Harris TweedCo. Ltd. v Veitch [1942] 1 All E.R. 142, 148, G

> ... it is clear that if A is damaged by the action of B, A nevertheless has no remedy against B if B's act is lawful in itself and is carried out without employing unlawful means. In such a case, A has to endure damnum absque injuria. H

In an earlier case, Rogers v Rajendra Dutt (1860) 13 Moo. P.C. 209, it was similarly said:

> It is essential to an action in tort that the act complained of should under the circumstances be I legally wrongful as regards the party

LUGAKINGIRA J

complaining; that is, it must prejudicially affect him in some legal right; merely that it will, A however directly, do a man harm in his interests, is not enough. With these principles in mind I will now turn to consider the position in this appeal. B

One of the issues framed by the learned trial magistrate was "Whether the plaintiff was authorised to carry out business-lumberjacking". In effect he was addressing himself to the legality of the respondent's activities. He answered the question in the affirmative and C did so on the following evidence. At the trial the respondent produced a licence (Exh. P1) which was not in his name but in the name of one Jumanne Issa. He claimed that the licence was jointly owned, saying that he and Jumanne Issa "worked together". He then called a forestry officer, one G.E. Lyimo, who also stated: "On the said (licence) we D wrote the name of Jumanne Issa and there was no reason to write the name of Mbara for both work together". Jumanne Issa was not called to testify. The trial magistrate considered the alleged arrangement and said:

I am not in doubt that the plaintiff had a licence to carry out lumberjacking. The said licence E was owned jointly but it was issued in Jumanne Issa's name. I do not find anything illegal in this. If by insisting that the licence carried by Mbara was not his for it was written in Jumanne Issa's name, (sic) the defendants had strictly to prove this. They could have looked for and called the said Jumanne Issa to give evidence to that effect. Whoever alleges has the duty to F prove.

These remarks and the evidence of the forestry officer are, to put it mildly, rather startling. I will demonstrate this beginning with the licence issue. G

I should perhaps start by mentioning that Mr. Mukri merely drew my attention to the fact that the licence was in Jumanne Issa's name, an obvious fact, without elaborating. I was therefore not adequately assisted on this subject. For my part, I must confess my H ignorance of how a licence issued to a particular person can avail itself to diverse persons on the allegation of working together. I think, with respect, that would defeat the whole purpose of licensing, and licences would be liable to abuse, for there can be no limit to the number of persons who, when it suits the occasion, may claim to be working together. I think I am correct in saying that if a hundred persons are desirous of I executing a common enterprise for which the law requires the acquisition of a licence and a

licence is duly issued in the name of one of them, not being a corporate or partnership A name, the licensee is the person named therein but not the other ninety-nine. This is not to say, and I should not be understood as saying, that the licensee cannot take on a partner or partners even after acquiring the licence in his own name. He certainly can; and the legality of the partnership and its competence to operate on the strength of the B licence would not be vitiated thereby. What I am saying is that the partnership cannot operate without the licensee remaining a partner and manager of the business nor would it be open to any of his partners independently to set up his own business on the strength of the licence. For want of a local authority I will refer to the Kenya case of Muhuri v C Kiriu [1969] E.A. 232 which I find

instructive. In that case one Godfrey Muhuri obtained in his name a road licence under the Kenya Transport Licensing Act, Cap. 404. He then purchased a motor bus with monies contributed by a number of other persons. Each person was to receive a share in Muhuri's name. It was accepted that D this resulted in a partnership managed by Muhuri. Subsequently a dispute arose among the partners and some of them brought an action against Muhuri and others seeking a dissolution of the partnership with the taking of an account. It was contended by Muhuri and others as a preliminary issue that as the licence was in Muhuri's name alone the partnership was illegal. The High Court of Kenya held that Muhuri carried on business E in his name subject to the equities in favour of all partners and the partnership was lawful. This decision was upheld by the Court of Appeal which went on to observe. (at pp. 234-5):

... Godfrey Muhuri was, with the agreement of the partners, to manage the transport business F .... As manager he would operate the transport business on behalf of the partnership. In effect he would be the person responsible for conveying the passengers under the licence .... The position might well be different if Godfrey Muhuri in fact had not been managing the G transport business.

In the instant case the respondent was in fact carrying on business in which the licensee, Jumanne Issa, had no interest at all, although he alleged that they worked together. It is H abundantly clear from the plaint and from his evidence that he had set up his own independent business. To that end he described himself as "a licensed businessman" and never even bothered to call Jumanne Issa to testify. But, in my view, he was like the hypothetical ninety-nine and could not lawfully carry on his own business on the strength of the licence issued to Jumanne Issa. It was equally unlawful for the latter, if he did so, I to pass on the licence to the

respondent. Indeed one of the conditions annexed to Exh. Pl and appearing at the back A thereof is that it is not transferrable.

In sum, the respondent had no licence authorising him to cut and remove timber from the forest at Minyughe. His activity was thus unlawful and the appellants' act of stopping him was a lawful act. It follows that the appellants' act was not actionable or (if Latin be B more to the affection of the trial magistrate) ex dolo malo non oritur actio.

The remark of the trial magistrate on the issue of evidence can be dealt with briefly. As observed by Mr. Mukri it is apparent that he misdirected himself on the burden of proof. C Undoubtedly, whoever alleges has the duty to prove. In this case the appellants alleged that the respondent had no licence and it is this contention which the law required them to prove. I think, with respect, that this burden was discharged the moment a licence was produced which was not in the respondent's name. The burden then shifted to the respondent to prove that the licence was in fact his. As just demonstrated it D wasn't his in fact. Perhaps the learned magistrate would not have fallen into the error he did had he not taken at its face value the evidence of the forestry officer

I believe that the foregoing is sufficient to dispose of the appeal but there is another ground to which I should refer. Assuming, as the trial magistrate did, that the respondent E was duly

licensed, the question arises whether he had not utilised the licence fully. Mr. Mukri argued this point and came up with calculations to show that the respondent's loss was incapable of demonstration. Unfortunately, I cannot take advantage of learned counsel's able calculations because he appeared not to differentiate timber from logs. F He therefore spoke of the respondent's having felled 290 logs whereas these were sawn timber. I desire to approach the matter differently. The licence in fact authorised the felling of 100 mninga trees only. It was upon the respondent to show that he had not felled that number of trees when he was interrupted. However, the respondent, whose G 22 workers had been in and out of the forest for the previous one month, passed over this subject in silence. The workers might already have felled more than that number, perhaps also less, we do not know. In this connection it is not irrelevant to observe that whereas the appellants asserted that there were 390 pieces of timber in the forest the respondent put the figure at 290. The trial magistrate does not appear to have H appreciated the significance of this discrepancy. He thought the appellants were unwise, because a higher figure tended to aggravate their liability; and also untruthful, because the respondent, supposedly, could not understate his loss. I am unfortunate in seeing the I issue differently. In my view, since it was against the appellants' interests to assert a higher figure, they might well have been truthful. On the other hand, it was in the

respondent's interests to assert a lower figure taking into consideration the number of A trees allowed under the licence. Be that as it may, whether the timber were 290 or 390, there was no evidence that the respondent had not felled 100 trees and thus made full use of the licence. There was therefore no evidence that he suffered any legal injury by reason of the appellants' interference. The trial magistrate nearly hit at the idea, but it B slipped through his fingers, when he said: "Because it has not been argued as to the quantity of the pieces of timber the plaintiff was destined to make it will be difficult to assess the real loss the plaintiff suffered". Had he substituted trees for pieces of timber and realised that the former were a fixed quantity, he should still have found it difficult to C assess the respondent's alleged loss.

Before concluding I wish to make an observation on the pleadings. It is noted that the second appellant was stated as "Kijiji cha Ujamaa Minyughe". That was undoubtedly vague and improper for I conceive of a village as a collection of hundreds of residents. D If it were the respondent's intention to sue a group of villagers, as the plaint initially indicated, he could have done so by a representative suit after obtaining the trial court's permission. However, that would still have been improper since his quarrel was not with the villagers as such but with the village government which had ordered the acts complained of and even summoned him to a meeting. He should therefore have sued the E Village Council which was a body corporate under Act No. 21 of 1975 with power to sue and be sued. In view of the outcome of the appeal, however, I do not have to decide the effect of the irregularity.

Mr. Mukri raised other interesting points but I consider it unnecessary to discuss them. F It suffices to reiterate that the respondent had no cause of action since he was engaged in unlawful lumbering. Alternatively and without prejudice, there was no evidence of his alleged loss. I

therefore allow the appeal with costs after setting aside the judgment and decree of the court below. G

H Appeal allowed.

1983 TLR p238

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[zRPz]REPUBLIC v NJANI HASSAN 1983 TLR 238 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

December 15, 1981
CRIMINAL REVISION 4 OF 1981 B
Flynote
Criminal Practice and Procedure - Corporal punishment - Where prevented from being executed- Power to revise sentence - Sections 15(1) and 16 Corporal Punishment Ordinance, Cap. 17.
-Headnote
After sentencing an emaciated juvenile aged thirteen years to a total of 18 strokes in two C different cases, the Primary Court magistrate forwarded the case file to a District Court for confirmation of sentence. The District Court, influenced by a medical report that the accused was of tender age and very weak reduced the sentence to 4 strokes. Before execution of the sentence medical evidence showed that the accused was D anaemic, had a swollen spleen and that he was too weak to resist even the omnibus 4 strokes sentence. The District magistrate thinking that he had no power to interfere in the order made by himself forwarded the record to the High Court for appropriate revisional order. E
Held: Where a corporal sentence cannot be inflicted under section 15(1) of the Corporal Punishment Ordinance, Cap. 17, under section 16 the court that passed sentence may in its discretion either remit such sentence or sentence the offender to imprisonment.
Case Information
Order accordingly. F
No case referred to.
[zJDz]Judgment
Lugakingira, J.: In Criminal Case No. 40/81 before the Primary Court at Paranga the G accused, a juvenile, was sentenced to an aggregate of nine (9) strokes in two counts. Before the same court in Criminal Case No. 42/81, the same accused, on the same day, was sentenced to a total of nine (9) strokes in two other counts. It meant that he was to H undergo corporal punishment of 18 strokes in the two cases. The trial magistrate was quick to forward the record to the District Court, Kondoa, for confirmation of sentence. The District Magistrate, after examining the first medical report, which stated the accused was between 12 and 13 years and emaciated,

and after seeing the accused, I whom he adjudged "really a child of tender age and physically weak", revised the sentence and substituted an omnibus sentence of four
1983 TLR p239
LUGAKINGIRA J
(4) strokes for both cases. A
Before the new sentence was carried out, however, the accused underwent another check up at Kondoa Government Hospital. The doctor reported and said that the accused was anaemic and had an abnormally large spleen. He certified that he was unfit to undergo even the four strokes except after treatment which could take three to four B months. Faced with this report and certificate, the District Magistrate forwarded the record here for the appropriate revisional order as he was of the view that he was precluded from interfering in the order made by himself.
After examining the case and the law respecting this matter, I have reached a view different from that of the learned District Magistrate. I think that ss. 15 and 16 of the C Corporal Punishment Ordinance, Cap. 17 are relevant. Section 16 states in part:

15.-(1) No sentence of corporal punishment shall be inflicted until a medical officer ... has, after examination of the offender, certified that he is physically fit to undergo the sentence D imposed upon him....

And section 16 states in part:

16. In any case in which under section 15 a sentence of corporal punishment is wholly or E partially prevented from being executed, the offender shall be kept in custody until the court which passed the sentence can revise it; and the said court may in its discretion either remit such sentence or sentence the offender ... to imprisonment .... F
In this case, the doctor has certified that the accused is physically unfit to undergo the four strokes. That certificate falls under section 15 and, in effect, wholly prevents the sentence from being carried out. In that case, under section 16, the sentence falls for G revision by the court which passed it. The four strokes were ordered by the District Court. It follows that the District Court has power to revise that order. Considering the facts and circumstances of this case, the District Court could remit the sentence and discharge the accused. It is advised to proceed accordingly.
H Order accordingly.
1983 TLR p240
A
[zRPz]ZACHARIA MILALO v ONESMO MBOMA 1983 TLR 240 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

November 26, 1984
(PC) CIVIL APPEAL 1 OF 1983 B
Flynote

Civil Practice and Procedure - Prayer for relief - Petition of appeal contains no prayer for any relief - Effect.

-Headnote

The appellant occasioned loss to a village shop. Before a Primary Court he admitted, C and agreed to refund, the loss. Later on he complained by unsigned letters to a District Court. He was advised to file an application for leave to appeal out of time. The resident magistrate who heard the application dismissed it on the ground that the delay was occasioned by the applicant's sluggishness and was without reasonable cause. The D magistrate noted in passing that the trial court had no jurisdiction in the matter as he was unable to see elements of customary law. The applicant appealed to the High Court against the magistrate's ruling but neither the petition of appeal nor counsel's submission contained any prayer for any relief. E

Held: Unless an appellant specifies the relief desired the court cannot proceed to hear the appeal for want of purpose; (cf. r. 15(1)(e) Primary Courts Civil Procedure Rules, G.N. No. 310 of 1964 and 0.7 r. 1(g) and 7 of the Civil Procedure Code 1966 where requirement to specify relief claimed is mandatory). F

Case Information

Appeal dismissed.

Cases referred to:

1. Selemani Hoti v Iddi Omari [1967] HCD n. 282 G
2. Yohana Mijuni v Isaya Bakobi [1969] HCD n. 23
3. Mtatiro Mwita v Mwita Marianya [1968] HCD n. 82
4. Rex v Ndembera Mwandawala [1947] 14 EACA 85
5. Peter Merishoki v Barnabas Kiriri [1969] HCD no. 286

D.C. Mbezi, for the appellant. H

[zJDz]Judgment

Lugakingira, J.: The respondent Onesmo Mboma, in his capacity as Ward Secretary of Chipanga Ward in Dodoma District, sued the appellant Zacharia Mlalo in the Primary I Court at Chipanga for occasioning loss of Shs. 4200/= to a village shop through

negligence. The appellant was the manager of the shop and the money comprised of A proceeds of sales for which he had exclusive custody. He admitted the claim. Nevertheless, evidence was adduced and in the end he was adjudged liable and ordered to refund the money and costs of the suit. That was on 16 April, 1981.

On 12 May, 1981 the appellant wrote to the District Court, Dodoma an unsigned letter B in which he purported to set out what transpired at the trial, but without indicating his intentions or motives. The District Magistrate before whom the letter was placed was rather perplexed and endorsed on it: "Akija au kama yupo anione". In the event the Magistrate never saw the appellant. Instead, on 12 November, 1981, the appellant C wrote a reminder following the attachment of his cattle nearly three months earlier on 19 August 1981. The reminder was

similarly a fulminating and distorted narration of what transpired at the trial, but on this occasion he also invited the District Court to call for the trial record "kwa haki zaidi".

It was otherwise not an appeal as such. It came to the attention of another Magistrate D who minuted that the writer be advised to apply for leave to appeal out of time. It seems that the appellant was duly advised for he filed an affidavit on 5 May, 1982, but without attaching the grounds of his intended appeal. Nevertheless, the application was heard and eventually dismissed on 17 March, 1983. The learned Resident Magistrate who E heard the same ruled that the delay was occasioned by the appellant's sluggishness and was without reasonable cause. He also observed in passing that the trial court had no jurisdiction in the matter as he was unable to see elements of customary law. From this ruling the appellant appealed here through learned counsel Mr. D.C. Mbezi. F

Before this Court Mr. Mbezi took up two points. He argued, in the first instance, that the Resident Magistrate erred in holding that the appellant was responsible for the delay. He maintained that whenever the appellant called he could not find the magistrate who had wanted to see him. That was indeed the story which the appellant had narrated to G the Resident Magistrate. Secondly Mr. Mbezi submitted that after the Resident Magistrate had observed that the trial court acted without jurisdiction he should have declared the proceeding a nullity. Significantly, however neither the petition of appeal filed by Mr. Mbezi nor his submissions before me contain any prayer for any relief. H There was even no prayer for costs, but that does not bother me. I therefore do not know what this Court is called upon to do: whether to direct the District Court to hear and determine the intended appeal or whether to quash the proceeding for the alleged nullity.

The above matter has exercised my mind somewhat. It could also be novel. I have I therefore decided to turn to the relevant provisions of the

law in an endeavour to discover some guidance. I think I am correct in saying that the A appeal is governed by the provisions of the Primary Courts Civil Appeals Rules, G.N. No. 312 of 1964, the proceeding having originated in a Primary Court. Under r. 4(1) thereof it is provided that every petition of appeal shall set out precisely the grounds of objection to the decision or order appealed against. B

This rule is not dissimilar to 0.39, r.1(2) of the Civil Procedure Code. Surprisingly, however, neither of these rules require the petition to embody a prayer for the relief or reliefs desired. Would that mean that such a prayer is unnecessary or undesirable? I find it difficult to say so. I think that even in the absence of express provisions to that C effect it would be idle to suppose that such a prayer is not implied, otherwise the appeal would be without purpose. In this connection one may usefully turn to the position obtaining in the institution of suits. Under r.15(1)(e) of the Primary Courts Civil Procedure Rules, G.N. No. 310 of 1964, the plaintiff is required to specify the relief D claimed and this requirement is mandatory. Again this is similar to 0.7, r.1(g) of the Civil Procedure Code which is restated in amplified form as r.7, and again the requirement is mandatory. I therefore imagine that where the plaintiff fails to specify

the relief claimed as required by these rules the court cannot proceed to hear the suit unless the plaint is E amended. By analogy, it seems to me that even an appellant has to specify the relief desired. It is of course permissible for the appellant (as with the plaintiff) to pray for alternative reliefs even if they are inconsistent, so long as they are not also embarrassing. Mulla says that a pleading is embarrassing if it is so drawn that it is not clear what case F the opposite party has to meet at the trial. The same is undoubtedly true in an appeal. The respondent would be embarrassed if it is not clear what case he has to meet. Assuming in the instant appeal that the appellant seeks to be permitted to prosecute his appeal in the District Court or, in the alternative, to have the proceeding quashed, I think G that that is embarrassing to the respondent. It is the more embarrassing since there was no prayer of any kind, let alone in the alternative, so as to enable the respondent to prepare his case. It is on these grounds that I think a proper petition of appeal should specify the relief desired. I was minded to dismiss this appeal on this ground of want of purpose but in view of Mr. Mbezi's curiosity, perhaps also my own, I will proceed and H look into the arguments canvassed before me.

Starting with the issue of delay, I find it difficult to appreciate Mr. Mbezi's contention. It is I think evident from the summary of events that the appellant was indeed sluggish. He chose as his modus operandi the pleasure of writing polemical letters, one of which he I never even signed and both of which had no purpose. It was as if he was recording his

experience, but, even this, without recording it accurately. It is equally difficulty to A believe, and the Resident Magistrate could not believe, that the appellant was calling at the Court but getting no assistance. If he was intent on seeing a particular Magistrate, that again was his fault. The business of the Court is not the preserve of any particular Magistrate, at least at that preliminary stage. And which particular Magistrate was he B intent on seeing when he had not met one before? In considering this, I cannot fault the finding of the learned Resident Magistrate that the appellant's allegation was untrue. In all probability, it seems that after writing his first and unsigned letter the appellant decided to call it a day. Perhaps if it were not for the attachment of his cattle, a very sensitive C issue in this area, we would have heard no more from him. I am thus satisfied that the delay was wholly of his own making and that it was without reasonable cause. If it is necessary to state any rule on the matter I would say that the right of appeal must be seen to have been exercised before the appellate Court can bear or share responsibility D in the delay. This right is not exercised by merely lodging letters of accusations with that Court. I would go further and say that in exercising its discretion to grant or not to grant leave to appeal out of time the appellate court is also entitled to have regard to the prospects of the intended appeal. In the instant case, it is virtually impossible to see the E prospects of the intended appeal. He said, to use his own words, "Sina ubishi na ushahidi. Nitalipa tu upungufu huo Shs. 4,200/=". In view of this, the application was in fact a waste of time. I am satisfied on the whole that it was properly dismissed.

The issue of jurisdiction is equally interesting. Mr. Mbezi argued that the Primary Court F had no jurisdiction first because the suit was founded in tort-conversion as he viewed it - and

secondly because the value of the subject matter exceeded Shs. 1,000/=. I see no substance in these arguments. I propose to dispose of them together; meanwhile, I think there is need for some general observations on the civil jurisdiction of Primary Courts. Suppose a villager employs another villager in the management of the former's G property or business and the latter subsequently fails to account for it either through negligence or conversion: I have yet to hear that a Primary Court would have no jurisdiction in the matter. There are decided cases, indeed, involving alleged negligence H or conversion where persons have been sued in Primary Courts without this Court expressing disapproval. See for instance Selemani Hoti v Iddi Omari [1967] HCD n. 282 and Yohana Mujuni v Isaya Bakobi [1969] HCD n. 23. It seems to me that it is these exotic terms "negligence", "conversion", "trespass", etc., with their tinge of I learnedness, that encourage some of us to misapprehend the jurisdiction of Primary Courts,

as if civil wrongs were unheard of and were unjustifiable until the advent of English law A and the English language. The notion is erroneous and this requires no demonstration. These wrongs existed in our communities and were justiciable according to customary law. It is therefore incorrect to say that a Primary Court has no jurisdiction in a civil matter merely because some foreign nomenclature can be applied to it. In so far as I B know, there are three situations in which a Primary Court would not have or would be deprived of jurisdiction. These are where the law applicable is neither customary law nor islamic law; where jurisdiction is expressly taken away by statute; and where the dispute is of such legal and technical complexity as to be considered beyond the competence of C such court. In all other respects a Primary Court has and may exercise jurisdiction.

We can now look at the position in the instant case. Starting from below we find that the case was not complex at all. It was commenced and concluded at one sitting, the only evidence involved being that of the respondent and the appellant. The issue involved D was not a dispute either, for the appellant promptly admitted the claim. One therefore marvels at his courage in his present rancour and refraction. In substance, therefore, the suit was within the competence of the Primary Court. We next find that this was not a suit which by statute was removed from the jurisdiction of that court. Mr. Mbezi's E reference to pecuniary jurisdiction was irrelevant if customary law was in fact applicable. The Magistrates' Courts Acts, 1963 and 1984 prescribe a pecuniary jurisdiction only in suits for the recovery of civil debts due to the Republic or local authorities and suits for the recovery of similar debts arising out of contract. There is no pecuniary limitation in F all other suits which a Primary Court has jurisdiction to try. The instant case was not for the recovery of a civil debt due to the Republic or a local authority nor was it founded in contract. Therefore, if customary law was applicable, it was within the jurisdiction of the Primary Court regardless of the value of the subject matter.

It is clear from the foregoing that the most important question on this case is whether, in G fact, customary law was applicable. I hasten to say that it was. First of all, I do not think that it made any difference that the money lost was that of a village shop as distinct from that of an individual villager. In fact it was the money of an unknown number of individual villagers in the

absence of evidence that the shop had a corporate H personality. When these villagers set up the shop and appointed the appellant its master they could not have contemplated that their relations would be governed by some foreign jurisprudence and there is no evidence to suggest so. In the absence of such evidence the dealings of villagers have to be construed as governed by their customs: I Mtatiro Mwita v Mwita Marianya [1968] HDC n. 82. The informality that
1983 TLR p245
seems to have attended the appellant's appointment argues loudly for that construction in A the instant case. Secondly, and probably more significantly, the assessors in this case did in fact state what amounted to a legal rule. They said that the appellant was liable for the loss "Kwa sababu yeye ndiye alikuwa meneja wa duka ... ndiye alikuwa mkubwa". In other words, they found him strictly liable by virtue of his position. They B could indeed have held that he had personally converted the money for he had exclusive custody of it and the cupboard in which he alleged to have locked was not found broken. Nevertheless, the opinion of the assessors show that strict liability is unknown in customary law. These assessors were ordinary villagers without pretensions C to a scholarly background but having as their source the customs of their society. The soundness of their view is also beyond question. Admittedly, the rule they expressed had not been established in evidence; but by virtue of the provisions of s. 37(a), Act NO. 2 of 1984, which re-enacts s. 32(3)(a) of the Magistrates' Courts Act, 1963, this D Court is enjoined not to refuse to recognise any rule of customary law on the ground that it has not been established in evidence, but may accept any statement thereof which appears to be worthy of belief which is contained in the record of proceedings in or before any lower court which has exercised jurisdiction in the case. E
There have been decisions, notably Rex v Ndembera Mwandawale (1947) 14 EACA 85 and Peter Merishoki v Barnabas Kiriri [1969] HCD n. 286 in which the view was expressed that customary law ought to be established in evidence. In view of the provisions just cited these decisions and similar ones are to that extent not the law of this F country. I believe the foregoing sufficiently demonstrates that customary law was applicable in this case, hence that the Primary Court had jurisdiction.
G Appeal dismissed.
1983 TLR p245
H
[zRPz]JUMA MISANYA AND ANOTHER v LISTA NDURUMAI 1983 TLR 245 (HC)

Court High Court of Tanzania - Dodoma
Judge D'Souza Ag J

September 7, 1984
CIVIL APPEAL 22 OF 1983
Flynote

Family Law - Damages - Whether special damages and mesne profits may be claimed for I an adulterous association.

1983 TLR p246

D'SOUZA Ag J

-Headnote

The respondent successfully sued the first appellant in a Primary Court for adulterous A association with his wife. The appellant paid shs.1,000/= and promised to stop the relationship. But the relationship continued and the appellant married the second appellant (respondent's wife) according to Islamic rites. The respondent filed another B action and claimed Shs. 5,000/= for adultery, Shs. 5,000/= as special damages, costs of the suit and mesne profits of Shs. 1,000/= per month for adultery from the date of filing the suit till divorce was granted between the respondent and the second appellant. In an ex-parte judgment the District Court entered judgment for the respondent as prayed. The appellants' application to set aside the ex-parte judgment was refused, and they C appealed against the ruling. One of the grounds of appeal argued in favour of the appellants was on the merits of the District Court's judgment allowing all the reliefs as prayed.

Held: (i) Damages for adultery are awarded on the principle that they are to be by way D of compensation for the husband's loss and injury, and not by way of punishment of the adulterer for his misconduct;

(ii) where special damages are claimed they must be proved in evidence. In this case no special damages were proved;

(iii) "mesne profits" are not a head of damages allowed in adultery cases. E

Case Information

Order accordingly.

No case referred to. F

D.C. Mbezi, for the appellants.

[zJDz]Judgment

D'Souza, Ag. J.: This is an appeal arising from Dodoma District Court Civil Case No. G 58 of 1982. The appellants Juma Misanya and Moleni Masululu were the first and second defendants respectively in that case. The respondent Lister Ndurumai was the plaintiff. In the plaint the respondent alleged that he is a teacher resident at Handali Primary School, Dodoma and that the 1st appellant is a Rural Medical Aid and the 2nd H appellant is a Ward Attendant at Chiboli Dispensary, Dodoma. The respondent and the 2nd appellant were husband and wife and the 1st appellant started 'poaching' and on 9.6.82 were caught in flagrante delicto. The 1st appellant paid compensation of Shs. 1,000/= and undertook to stop his association with the respondent's wife. However, I instead of desisting the 1st appellant went through a ceremony of marriage with the 2nd appellant under Islamic

1983 TLR p247

D'SOUZA Ag J

rites and continued to live with and commit adultery with 2nd appellant. In paragraph 8 A of the plaint the respondent claimed Shs. 5,000/= for "pain of mind, credit and reputation". In

paragraph 10 he put the value of the claim at Shs. 10,000/=. Finally at the end, the plaint is as follows:

Therefore, the plaintiff prays the Honourable Court to enter judgment and decree in his favour B as follows:

(a) Shs. 5,000/= for adultery

(b) Shs. 5,000/= for special damage

(c) Costs of the suit C

(d) Mesne profits of Shs. 1,000/= every month for adultery from the date of filing this suit till divorce is granted between the plaintiff and 2nd defendant.

(e) Any other relief as the honourable court will think fit to make. D

On 20.1.83 both parties appeared before the Senior Resident Magistrate at Dodoma. The two appellants stated that they had been served with plaint only the previous day and required time to file their defence to the plaint. They were granted until 10.2.83 to E do so. On 10.2.83 both parties appeared before the court. The appellants stated that they had not filed their written statement of defence because they had failed to understand the plaint. They were given time until 23.2.83. The case was fixed for mention on 24.2.83. On that date the appellants failed to turn up in court or to file a F defence and the court ordered that the matter proceed ex-parte. On 19.5.83 the court entered judgment for the plaintiff as prayed on the basis of an affidavit filed by him and which affidavit was an almost verbatim repetition of the facts alleged in the plaint.

On 23.9.83 the District Court Dodoma, presided over by one of the resident magistrates, ruled on the appellants' application to have the ex-parte judgment set aside. G The court rejected the application because the court was not satisfied that the applicants had been prevented by illness from attending court. The court noted the absence of any medical evidence on the issue.

The appellants then appealed to this court. Mr. Mbezi, counsel for the appellants H attacked the ruling of the District Court refusing to set aside the ex-parte judgment and he also questioned the merits of the judgment itself. The respondent was served to appear for the hearing of this appeal but failed to turn up, and the matter proceeded in his absence.

Mr. Mbezi's main ground for challenging the ruling of the District Court was that the I court ought to have accepted the affidavits of the applicants/

appellants as the same were unchallenged. The record does not show that the A respondent was told of his right to file a counter affidavit. It is not possible therefore to assume that the mere non-challenge of the affidavits amounted to admission of its contents. This is particularly so because the respondent was not represented by counsel.

However, this court is of the opinion that whether an affidavit is challenged or not it is still B the duty of the court to weigh all the circumstances of the case, including the law on the matter, and to decide whether to allow the application.

Although the court which passed the ex-parte judgment did not say so expressly it is C clear from the record that the court entered the ex-parte judgment because of the failure of the defendants to present a written statement of defence under 0.8, r.14 of the Civil Procedure Code.

Where ex-parte judgment is entered for non-appearance under order 9, r.13, the same provides for application to be made to set aside the ex-parte D judgment. However no similar provision exists for setting aside judgments entered for default of filing a written statement of defence. The chamber application filed in the District Court does not state under what provision it is made. Under Order 40, r. 4(1)(b) the aggrieved party may appeal to the High Court against an order under r. 14 of E Order 8 pronouncing judgment against a party. For this reason this court finds that the application before the District Court was misconceived. Section 95 of the Civil Procedure Code cannot be invoked to assist because the defendants were given a specific right of appeal.

The ex-parte judgment was passed on 23.9.83. The appeal to this court was filed on F 23rd November, 1983 well before the time allowed for appeals from decisions of the District Court made in its original civil jurisdiction. I am also of the opinion that the fact that the appellant pursued a wrong remedy - i.e. applying to the District Court to set aside the judgment - did not deprive him or them of their right to appeal against the G decision of the lower court entering judgment in default of filing a written statement of defence and against the decision on its merits.

Mr. Mbezi argued that the District Court acted erroneously in entering judgment in default of filing a written statement of defence. The record shows that the appellants were granted two extensions for filing their defence but appear to have dragged their H feet. Their allegations of illness was not supported by medical evidence and as both of them worked in a hospital this was rather strange.

It is on the merits of the District Court's judgment that Mr. Mbezi for the appellants stands on better grounds. The plaint included a claim for special damages in the sum of I Shs. 5,000/= and another head rather amusingly termed "mesne profits" of Shs. 1,000/= per month from date

of filing the suit to such time as divorce is granted. These were in addition to the general A damages of Shs. 5,000/= claimed. All these were allowed by the court as prayed. By 27th October, 1983, when the decree holder filed application for execution, because of the running damages termed "mesne profits", the decretal amount, excluding costs had reached Shs. 22,000/=. By not filing divorce proceedings or by delaying the same, B presumably the decree holder could eventually execute for an enormous amount of money out of all proportion to the wrong suffered by him.

Damages for adultery are awarded on the principle that they are to be by way of compensation for the husband's loss and injury, and not by way of punishment of the adulterer for his misconduct. In assessing these damages both the material loss and C moral loss are taken into account. On the material side the husband could prove for example the cost of keeping a nanny to look after children left behind by the wife. The injury to the husband's feelings and family pride and loss of companionship must be taken into account on the moral side. The material loss, termed special damages, must D be proved in evidence. The other, or general damages are assessed by the court considering all the circumstances of the case.

In this case there was no evidence at all to prove special damages. The "mesne profits" were also unjustified in law and were not a head of damage allowed in adultery cases. If E anything they were punitive.
The court accordingly allows this appeal to the extent of setting aside the award of Shs. 5,000/= special damages, and Shs. 1,000/= per month running damages. F
The award of Shs. 5,000/= general damages, which appears reasonable in the circumstances, is left undisturbed. Each party is to bear his own costs in this appeal as the appeal was only partly allowed.
G Order accordingly.
1983 TLR p250
A
[zRPz]BIBI KISOKO MEDARD v MINISTER FOR LANDS, HOUSING AND URBAN DEVELOPMENT AND ANOTHER 1983 TLR 250 (HC)

Court High Court of Tanzania - Arusha
Judge Mwakibete J

MISC. CIVIL APPLICATION 10 OF 1982 B
Flynote
Civil Practice and Procedure - Functus officio - When a tribunal becomes functus officio.
-Headnote
The Minister for Lands, Housing and Urban Development heard an appeal from the C Customary Land Tribunal and decided in favour of the applicant. He later discovered that he had not heard the witnesses of the second respondent before giving his decision. He decided to rehear the appeal and now decided in favour of the second respondent. The applicant filed an application challenging the Minister's decision to rehear the case. D
Held: (i) In matters of judicial proceedings once a decision has been reached and made known to the parties, the adjudicating tribunal thereby becomes functus officio;
(ii) the Minister, having reached a decision and made it known to the parties E became functus officio and could not sit in judgment of his own decision.
Case Information
Application allowed.
No case referred to. F
F.B. Mahatane for the applicant.
M.P. Mtingele for the first respondent.
[zJDz]Judgment
Mwakibete, J.: This application concerns a case under Customary Leasehold G (Enfranchisement) Act 1968. A party who had lost before the Customary Land Tribunal had appealed to the Minister for Lands and Urban Development, and the Hon. Minister had given his decision in that appeal on 27/1/1981, in favour of the applicant - Bibi Kisoko Medard.

Following that decision the 2nd respondent (Prosper S. Mahedi) lodged a complaint to H the same Minister to the effect that there was a failure of justice in that his (2nd respondent's) witnesses had not been heard.

The Minister was satisfied that the 2nd respondent's witnesses had indeed not been I heard in the matter - when he decided to rehear the appeal. The rehearing naturally resulted in a 2nd decision on the same

appeal. And the 2nd decision happened to be inconsistent with the previous one of A 21/1/1981. The 2nd decision is dated 30/12/1981.

It is this decision, of the Hon. Minister, to rehear the appeal and ultimately reverse his first decision, which is the subject of challenge in these proceedings by way of certiorari.

The case of the applicant is basically one that once the Minister had made known his first B decision to parties, he was functus officio in the matter - that is that he would be incompetent in law to rehear the appeal for whatever reason because he had already discharged his duty as an appellate tribunal in the matter; that if the 2nd respondent was aggrieved by the 1st decision on the grounds that the principles of natural justice had not C been observed, it was open to him to challenge the same in the High Court, by way of certiorari, under the Judicature and Application of Laws Ordinance (Cap 453) - Vide s. 2 with a view to quash the alleged offending decision.

Mr. Mtingele, learned state Attorney for the 1st respondent, conceded that the proper D course in law was as propounded by Mr. Mahatane learned counsel for the applicant - that the 2nd respondent ought to have invoked the provisions of the Judicature and Application of Laws Ordinance to move the High Court to cure the alleged injustice! He however observed that since the Minister was satisfied that justice was not done in E his first decision and that since what the Minister did in his 2nd decision was to correct the injustice occasioned by his first decision he could not be faulted for having so acted - after all his function in his appellate jurisdiction was to see that justice was done to the parties. So when it had become apparent that justice was not done in the 1st decision F which happened to be his own decision, he was entitled to revise the same as he did. In any event, he went on, the Tribunal was not bound by strict rules of procedure as required in the ordinary courts of law.

The 2nd respondent fully associated himself with the observations of the learned State Attorney. And like Mr. Mtingele he, too, asked this court to dismiss the application with G costs.

I agree with Mr. Mahatane that in matters of judicial proceedings once a decision has been reached and made known to the parties, the adjudicating tribunal thereby becomes 'functus officio'. So was the Hon. Minister 'functus officio' in the matter of appeal H between the applicant and the 2nd respondent, after his decision of 27/1/81.

It may, as suggested, have become apparent to the Hon. Minister that justice was not done in his first decision, yet that is no basis in law to rehear and reverse his own decision. There is no such authority under the Customary Leasehold (Enfranchisement) I Act 1968 or under the regulations made under the Act. And according to the law of the land

1983 TLR p252
only 2nd appellate tribunal, if provided, or, in the circumstances of this case, a High A Court, may reverse a decision of another tribunal of limited jurisdiction. There is no room under the law for any tribunal, be it appellate or otherwise, to sit in judgment of its own decision. Matters of 'review' as provided under the Civil Procedure Code are B irrelevant because the Civil Procedure Code is inapplicable to litigations under the Customary Leasehold (Enfranchisement) Act 1968.
If the Hon. Minister was satisfied that the first decision was lacking in some respects, all he could do was to advise the aggrieved party to seek redress in the High Court under the law as above. There was no legal short cut! C
From the foregoing it is clear that the proceedings before the Hon. Minister that culminated in the 2nd decision of 31/12/81 were null and void. As such the 2nd decision was of no effect and is hereby quashed. Which means that the Minister's decision of 27/1/1981 is still valid and it is so declared. D
Application allowed.
1983 TLR p252
E
[zRPz]CHAPAKAZI BUILDING CONTRACTOR v PAROKIA YA KIWANJA CHA NDEGE
1983 TLR 252 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

January 22, 1986
CIVIL CASE 20 OF 1982 F
Flynote
Contract- Building contract - Payment of an agreed sum for the total work provided for in the contract - Instalment payments in percentage of the total to be made on reaching specified G stages and after certification by an architect named in the contract - Whether contract entire or not entire - Whether consideration to be given in a lumpsum or in specified price to be made up of separate payments for each separate part of the building or works.
Contract - Building contract - Frustration - Failure of the contractor to secure building H materials- Whether contract frustrated.
Contract - Damages - Lumpsum contract mutually rescinded -Whether damages on quantum meruit may be awarded.
Contract - Building contract - Use of better materials and at a higher price than as I stipulated in a contract - Whether contractor may recover the difference in price.
1983 TLR p253
LAGAKINGIRA J
-Headnote

The parties entered into a building contract. According to the terms of the contract the A plaintiff was to be given consideration for the total work, but on reaching specified stages of the work and on certification by an architect he could be paid instalments which were to be calculated as percentages of the total payment. Under the contract the plaintiff contractor was obliged to secure building materials and was to complete the B work by a specified date. The plaintiff had difficulties in securing the building materials and some months before the specified date of completion of the work the parties were mutually agreed that the work could not be completed on or before the contract date. The contract was thus mutually rescinded. Both the parties secured services of experts C to evaluate the work at the stage reached. While the plaintiff's expert opined that the contractor was underpaid, the expert of the defendant was of the view that the plaintiff was overpaid. The plaintiff sought damages on a quantum meruit basis and argued that the contract was frustrated and was impossible of performance for reasons beyond his control. D

Held: (i) This contract was a contract entire, or a lumpsum contract; although the contract provided for payment in instalments, these were not the price for each separate stage, rather they were percentages of the entire price; E

(ii) the contract was not frustrated because the plaintiff was aware of the notorious shortage of building materials in this country;

(iii) in a lumpsum contract a party who has failed completely to perform his part cannot recover payment for the work he has done because his right to payment does not F arise until he has carried out his part of the bargain;

(iv) where, in a lumpsum contract, payment is to be made by instalments, a party can only recover those instalments but not the cost of the work actually done, unless there is evidence of a fresh agreement entitling him to recover on a quantum meruit; G

(v) the plaintiff is not entitled to recover on a quantum meruit basis;

(vi) in a lumpsum contract, the rise in prices and the use of superior materials do not entitle a party to the difference in price.

Case Information

Order accordingly. H

Cases referred to:

1. Davis Contractors Ltd. v Fareham U.D.C. [1956] A.C. 696.
2. Appleby v Myers (1867) L.R. 2 C.P. 651.
3. Metropolitan Water Board v Dick, Kerr & Co. Ltd. [1918] A.C. 119. I

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LAGAKINGIRA J

4. Sumpter v Hedges [1898] 1 Q.B. 673. A
5. Otis Elevator Co. Ltd. v Bhajan Singh & Ors. [1967] E.A. 78.
6. Forman & Co. Proprietary v The Liddlesdale [1900] A.C. 190.
7. Gomes v Singh [1964] E.A. 756.
8. Wisbech R.D.C. v Ward [1927] All E.R. Rep. 486.
9. Jamal Ramji Co. Ltd. v Lint Marketing Board [1962] E.A. 752. B

10. Sri Laba Prasad Singh v Maharaja Srish Chandra Nanli [1949] 76 I.A. 244.

11. K.M.P.R. v The Official Assignee of Madras (1923) Mad. 17.

G. Alimwike, for the defendant. C

[zJDz]Judgment

Lugakingira, J.: This was an action for various disbursements following the rescission of a contract. It was rather involved.

The plaintiff is a building construction firm under the sole proprietorship of Mr. Gislar D Macarius Kihaule and the defendant is a Catholic Church body, both based in Dodoma. By a written agreement dated 24 September, 1981 the defendant engaged the plaintiff to construct a church building on Plot No. DO/1445/7 at Area 'C' in the Municipality of Dodoma. In so far as this dispute is concerned the material parts of the agreement are E contained in Clauses 1 to 5 and state as follows:

1. That the contractor shall build the church on the plot and in accordance with the specifications and the terms and conditions hereto.

2. That the contractor shall provide all the material and labour for the building and do the F actual building.

3. That the contractor shall commence said building work on the 25th September, 1981 and complete the building work by he 25th July, 1982 the date on which the contractor shall hand over the completed church. G

4. That in carrying on the building work the contractor shall be guided by the Architect Mr. Malangaho in so far as the design of the buildings and materials to be used is concerned.

5. (a)That for the total work to be carried out by the said contractor in the said building he H shall be paid shillings one million and one hundred thousand only (Shs.1,100,000/=).

(b)That the aforesaid payment shall be paid to the contractor when he has built the church to reach the levels hereunder mentioned to the satisfaction of the Architect herein before named to be expressed by him in writing. I

1983 TLR p255

LAGAKINGIRA J

Then follows a table of twelve levels or stages and the sums payable at each stage A expressed in percentages of the entire price. The stages material to this case are (i) and (ii) and state:

(i) Advance payment 15% 150,000/=

(ii) Foundation level 10% 100,000/= B

There is also Clause 6 which provides for retention money of 50,000/= payable "at the expiration of that period the church is found to be in good condition". Clause 7 provides that the agreement is to be interpreted in accordance with the laws of Tanzania with such C terms and warranties ordinarily applicable to building contracts.

Construction began rather unsteadily. This was attributed to the defendant's inability to provide approved building plans in time, but it was particularly due to the plaintiff's difficulties in finding building materials. The plaintiff was initially provided with draft D building plans.

The approved plans were not made available until 6 November, by which time the plaintiff was already digging the foundation. The approved plans also indicated amendments to the draft. Whereas the draft plans included 8 additional columns there was also provision for a beam all round the foundation. By degrees the plaintiff proceeded with construction according to the approved plans. But on 26 E March, 1982 some expert of the defendant's - not Mr. Malangahe - inspected the works and directed the addition of two more columns. These were valued at 20,000/= and paid for separately.

Meanwhile, however, the works had been progressing slowly. As early as 19 February F the defendant had written to the plaintiff (Ex. D1) expressing dissatisfaction, in fact inviting the plaintiff to appear and show cause why the contract should not be terminated. The plaintiff replied on 20 April (Ex. P6) pleading difficulties in procuring building materials and raising the issue of the rise in prices. It stated that it would be impossible G to complete the works on the agreed date. This prompted a meeting of the parties on 25 May. At this meeting it was agreed that the plaintiff would have building materials on the site by 30 June. There was no change in the date of completion. In fact at the time of the meeting building activity had completely ceased and never resumed. The H foundation was still incomplete.

The plaintiff was unable to bring building materials as agreed. On 5 July the defendant wrote a letter (Ex. P7) suspending the contract. In the same month it awarded the contract to Messrs. Central Engineering Works. This prompted the plaintiff to engage a civil engineer, Mr. Mathias Malinga, to evaluate the existing works. Mr. Malinga's I evaluation was 316,785/=,

exclusive of the value of the unused materials at the site. On 6 September the parties A met. At the conclusion of the meeting a document (Ex. P10) was drawn up and signed by the both parties rescinding the contract. The document also stated that the plaintiff would take half the bricks at the site.

By that time the plaintiff had been paid as stipulated in stages (i) and (ii), that is, a total of B 250,000/=, and had been paid 20,000/= for the two additional columns, making in all 270,000/=. Having regard to Mr. Malinga's valuation, the plaintiff considered itself to have been underpaid by 46,785/=. The plaintiff also valued the unused materials at the C site at 58,220/=. It therefore brought this action claiming in all 105,005/= on a quantum meruit.

The defendant similarly valued the existing works. The plaintiff had substantially laid the hard core (i.e. stones) in the floor but was yet to lay the concrete floor slab, the final stage in the making of a foundation. According to Mr. Malangahe the existing works D were worth 210,000/=, which suggested an overpayment of 40,000/= on stages (i) and (ii). Further, the plaintiff had not completed the two additional columns for which it was paid 20,000/= Mr. Malangahe estimated the completed work to be worth 10,000/= which also suggested an over payment of 10,000/=. The defendant, therefore, E counter-claimed 50,000/= as money had and received after denying the plaintiff's claim.

The plaintiff was unrepresented while the defendants were represented by Mr. Geoffrey Alimwike. The following issues, which I have taken the liberty to restructure, were agreed upon: F

1. Whether the plaintiff's failure to complete the works by the agreed date was for reasons beyond its control.
2. Whether the amendments to the building plans entailed extra work.
3. Whether the plaintiff is entitled to further payment on a quantum meruit. G
4. Whether any building materials were left at the site.
5. Whether the plaintiff was overpaid.
6. Reliefs. H

The first issue raises impossibility of performance or frustration. The plaintiff relied on the defendant's delay in making approved plans available and on its own difficulties in obtaining building materials, and even seemed to blame the defendant in both aspects. I think the blame should be settled first. First of all, I do not see what harm was I occasioned by the absence of approved plans. In fact, the plaintiff went ahead with

digging the foundation and making bricks before getting the approved plans. There was A therefore a lot that could have been done without approved plans. Regarding difficulties in obtaining building materials and the implied blame for lack of assistance, it seems that the plaintiff did not appreciate the terms of the agreement. According to Clause 2, the obligation to find all the materials was the plaintiff's. Any difficulty in the B matter did not have the effect of altering that clause.

Turning to impossibility of performance we find that the law does not take cognizance of matters that are within the parties' control. (Although Tanzanian law was specifically declared applicable to the contract, I have found no authority for apprehension that it could be different from English law on the subject. I will therefore feel free to refer to C English law and decisions where necessary.) In building contracts it is not hardship or inconvenience or material loss which calls the principle of frustration into play: Davis Contractors Ltd. v Fareham U.D.C. [1956] A.C. 696. That was a case where the plaintiffs pleaded bad weather and unforeseen shortage of labour resulting in delay in D performance with a consequential rise in costs. The House of Lords held unanimously that the contract had not been frustrated so as to entitle the plaintiffs to claim their extra costs on a quantum meruit. What would give rise to frustration is, for instance, the destruction of the works by fire: Appleby v Myers (1867) L.R. 2 C.P. 651, or E government prohibition of, or restrictions on, building operations: Metropolitan Water Board v Dick, Kerr & Co., Ltd. [1918] A.C. 119. In other words, what is relied on as causing frustration must be of a nature which the parties could not by any diligence have foreseen and provided for in their contract. In the case before me, the plaintiff was F aware of the shortage of building materials in the country, that being a notorious fact. It was therefore a factor which a prudent contractor could have provided for in the contract. I hold that the contract was not frustrated.

It should indeed be mentioned that the termination of this contract did not proceed on G any notion of frustration. What transpires is that both parties were apparently convinced of the plaintiff's inability to carry out the works and decided to rescind the contract. Admittedly, the dealings and communications of the parties, having been mostly unprofessional, do not admit of easy interpretation. When Ex. P7 of 7 July is looked at, H it is both a suspension and a termination of the contract. In the first paragraph it says " umesimamishwa kazi ya ujenzi", which would mean a suspension, but in the third paragraph it informs Mr. Kihaule that he would be called to a meeting "ili muweze kuafikiana kuhusu gharama za ujenzi uliofanyika mpaka sasa", which would imply a I termination of the contract. The latter position tends to be strengthened by the appointment of another

contractor immediately afterwards. But then came the meeting of 6 September when ex. A P10 was drawn up. The first paragraph states:

Leo tarehe 6-9-1982 makubaliano kati ya Ndugu Chapakazi na Parokia ya Kiwanja cha Ndege ni kwamba Nd. Chapakazi si mjenzi wa Kanisa iliyotajwa hapo juu (my emphasis), kama B ilivyotajwa kwenye mkataba uliowekwa sahihi tarehe 24 Septemba, 1981.

This would mean that the contract was on that date rescinded. But the second C paragraph goes on to state:

Imekubaliwa kuwa kabla ya kufuta huo (my emphasis), Ndugu Chapakazi atachukua nusu ya matofali ya 'Block' yaliyopo kwenye Kanisa linalojengwa.

This would mean that rescission of the contract was in abeyance and contingent upon the D plaintiff's taking half the bricks. It is common ground, however, that the parties' contractual relations ceased with the signing of Ex. P10. I therefore take the view that the contract was bilaterally rescinded on 6 September, and in circumstances that E amounted to a dissolution impliciter. All in all, I am satisfied that the issue of frustration did not arise.

In connection with the second issue, the plaintiff complained that the amendments to the building plans entailed extra work. This is tied up with the complaint that apart from the F rise in prices, the plaintiff had to use the more expensive 25 mm. high tensile bars in lieu of the 20mm bars stipulated in the plans. The latter were not available.

As stated earlier, the draft plans made provision for 18 columns only but the approved plans made provision for a further 8 columns. There was also provision for a beam G skirting the foundation. Two more columns were added in March. It is settled that where a contractor has done work outside the contract he can recover for such extras although he had not completed the contract work: 3 HALSBURY'S LAWS, 3rd edn., para. 825. I will begin with the 8 columns. Did they entail extra work? The answer is to H be found in the evidence of Mr. Malangahe who said:

These did not entail any additional work. The reason is that there was a modification of the original columns to a smaller size. As result, therefore, the same amount of concrete and I bars which were

used in the 26 columns were the same as would have been consumed in the original 18. A

Mr. Malangahe illustrated this by reference to the plans - good to the eye but not easy to decipher - and Mr. Kihaule did not challenge the contention. I am satisfied that the 8 B columns did not entail extra work. On the other hand, it was conceded that the further two columns were duly paid for. The only extra works, therefore, appears to be the beam in the foundation. Ideally and according to practice, this should have been the subject of a separate agreement as was the case with the two extra columns. There was no such agreement. The matter will therefore fall for a consideration generally under the C issue of quantum meruit.

The question of prices and the use of superior materials will best be considered after settling the nature of this contract. I will therefore pass on to the third issue.

The third issue raises a matter of considerable importance. Accepting that the existing D works as valued by the plaintiff were worth 316,785/= the question is whether the plaintiff can recover 46,875/= on a quantum meruit. To resolve this one has to turn to the nature of the contract. It is now opportune to state that there are two types of building contracts: contracts entire and contracts not entire. In Halsbury's Law (op.cit.), E para. 822, four varieties of contracts entire are listed, the first two of which are relevant, namely,

(1) a contract to construct the whole building or works in consideration of the payment of a fixed sum of money ... often called lumpsum contract's (and) F

(2) a contract to construct the building or works in consideration of a specified price made up of separate payments for each separate part of the building or works. G

Contracts not entire are those where there is no obligation on the contractor to construct the whole of a particular work.

It was common ground that the plaintiff was engaged to construct the whole of a H particular work.

It was common ground that the plaintiff was engaged to construct the whole church building at a fixed price of 1,100,000/=. That amounted to a contract entire. The question is whether it fell under category (1) or (2) above. This turns on the construction of Clause 5 (b) of the agreement which makes provision for payment in instalments. It is again stated in Halsbury's Law, para. 824, that "In most building and engineering I contracts, provision is made for the payment of instalments during the

progress of the work. It depends on the construction of the particular contract whether A or not the effect of such a provision is to prevent the contract being entire." Although the present contract provided for payment in instalments, it will now be recalled that the instalments were not the price for each separate stage; rather, they were percentages of B the entire price. Stage (i), for instance, was an advance payment before any construction commenced. The actual price for each separate stage could indeed be higher or lower than the instalments stipulated. I am

therefore of the view that this contract was a contract entire, or a lump sum contract, which falls under category (1).

Whether or not a plaintiff can recover on a quantum meruit in a lump sum contract has C long been settled. Generally speaking a party who has failed completely to perform his part cannot recover payment for the work he has done, for his right to payment does not arise until he has carried out his part of the bargain. An exception to this rule is that D where, as in the instant case, payment is to be made by instalments, he can only recover those instalments but not the cost of the work actually done, unless there is evidence of a fresh agreement entitling him to recover on a quantum meruit. In Sumpter v Hedges [1898] 1 Q.B. 673, the plaintiff, a builder, contracted to build two houses and stables on the defendant's land for a lump sum. When the buildings were still E in an unfinished stage the plaintiff informed the defendant that he had no money and was not going on with the work any more. The plaintiff sued to recover payment for the work done partly on a quantum meruit. Smith, L.J. said: F

The law is that, where there is a contract to do work for a lump sum, until the work is completed the price of it cannot be recovered. It is suggested however that the plaintiff was entitled to recover for the work he did on a quantum meruit. But in order that that may be so, G there must be evidence of a fresh contract to pay for the work already done.

What amounts to a fresh contract to pay for the work already done may be inferred from the conduct of the defendant, but not every conduct would sustain such an H inference. Addressing himself to this aspect in the same case, Collins, L.J. said:

There are cases in which, though the plaintiff has abandoned the performance of a contract, it is possible for him to raise the inference of a new contract to pay for the work on a quantum I meruit from the defendant's having taken the benefit of that work, but, in order

that that may be done, the circumstances must be such as to give an option to the defendant A to take or not to take the benefit of the work done. It is only where the circumstances are such as to give that option that there is any evidence on which to ground the inference of a new contract .... The mere fact that a defendant is in possession of what he cannot help keeping, B or even has done work on it, affords no ground for such an inference. He is not bound to keep unfinished a building which in an incomplete stage would be a nuisance on his land.

Admittedly, the above case was one where the plaintiff abandoned the work. In the C instant case the plaintiff was willing to continue with the work, its obstacles notwithstanding, but contract was mutually rescinded. I have no doubt, however, that the principles laid down in the above case apply with equal force to the case before me. The agreement was to pay the plaintiff in instalments upon reaching certain stages of the D works, a normal practice even in lump sum contracts. There was no agreement to pay for the work done based on the plaintiff's costs. To imply such a term would be inconsistent with the express terms of the contract and I am precluded from doing so. The fact that the contract was mutually rescinded raised no inference of a new agreement on payment either. If it were the intention of the parties to enter into such

an agreement E they could have done so in ex. P10. Further, such an agreement cannot be inferred from the fact that the defendant took the benefit of the work done. The defendant had no option to take or not to take the benefit of that work. It could not keep unfinished a F church which in an incomplete stage would have been a very unchristian nuisance. The proviso to s. 70 of the Contract Ordinance, Cap. 433, is also relevant in this regard. I have therefore reached the conclusion that the plaintiff is not entitled to recover on a quantum meruit, but could possibly be entitled to recover the instalments in stages (i) and (ii) which have already been paid. G

The foregoing actually disposes of the question of the rise in prices and the use of superior materials, but something more could be said. First of all, Mr. Kihaule's evidence on prices was most unsatisfactory. He tendered documents which he said were for "illustration" only except for ex. 15 in relation to 200 bags of cement purchased H on 11 November. But there was no evidence that the price of this cement was higher than the price prevailing at the signing of the agreement. Be that as it may, the case of Davis Contractors cited above is also authority for the proposition that a builder who undertakes to perform a lump sum contract undertakes the commercial risk that delay would increase his costs. Where it is intended to guard against this, the normal practice I is to insert an adjustment

clause in the contract to accommodate any fluctuation in prices: cf. Otis Elevator Co. A Ltd. v Bhajan Singh & Ors. [1967] E.A. 78. There was no adjustment clause in the instant case and it is not open to the Court to add anything by way of an implied contract. The same is true of the plaintiff's use of the 25mm high tensile bars in B substitution for the 20mm bars stipulated in the building plans. First of all, Mr. Kihaule did not know their price and said: "I cannot tell what the price of the 25mm bars was in 1982". Most significant is that the use of these superior bars was not agreed upon. Clause 4 of the agreement required the plaintiff to be guided by Mr. Malangahe in, inter alia, the materials to be used. Mr. Kihaule went ahead and made use of the 25mm bars C without reference to Mr. Malangahe. In Forman & Co. Proprietary v The Liddlesdale [1900] A.C. 190, it was held that where, in an entire contract, the contractor without authority from the employer constructs the works of better materials than those stipulated in the contract, he can only recover the contract price without any D increase in price for the superior materials used. In short, the rise in prices and the use of superior materials are irrelevant in a contract of this kind.

In the fourth issue we are required to decide whether any building materials were left at the site so as to entitle the plaintiff to payment of 58,220/=. Once again, the evidence E was uncertain as to the type and quantity of materials left at the site. The quantities alleged by Mr. Kihaule were greater than those admitted by Mr. Smittar Singh of Central Engineering Works. Mr. Singh admitted finding about 400 to 500 concrete blocks, about half a lorry-load of stones, a store, one bag of cement, scattered sand, F one lorry-load of 1/4" aggregate, and scattered pieces

of timber which he termed "takataka". He said that if any more materials were left by the plaintiff, they might have been stolen before he took over. Mr. Kihaule interjected to say: "Oh yes' there were a lot of thefts. I suffered a lot too". It was then in evidence that there was no watchman at the site from the end of May to the middle of July when the second contractor took G over. If thefts could occur when the plaintiff was still at the site, it must have been a free for all during that interim. On a balance of probabilities, therefore, I accept the quantities and state of the materials as admitted by Mr. Singh.

Without going into the value of the admitted materials, the important question is whether, H in principle, the defendant is liable to pay for the same. Some building contracts contain a vesting clause giving over to the employer materials brought at the site but not fixed in the work. In the absence of such a clause it is implied that such materials remain the property of the contractor. There was no such clause in this case and that raises a I prima facie inference that the materials left at the site remained vested in

the plaintiff. The position, however, is radically altered by the terms of Ex. P.10. This A document mentioned bricks only, half of which the plaintiff was to take and did take. The omission to mention other materials was not accidental. In Mr. Kihaule's words:

> Ex. P10 talks of bricks only because I was then of the view that I could donate the rest of the B materials gratuitously to the Church, believing I was dealing with Christians.

It is evident, therefore, that the plaintiff elected to give up its rights over the other materials. But it is not correct to say, as Mr. Kihaule did, that the election was C gratuitous. I think it was supported by consideration.

In this case, time was of the essence of the contract. The plaintiff was by Clause 3 required to complete and hand over the church by 25 July. This date was never varied. (Although the defendant awarded the contract to another contractor apparently before D that date, I think it was entitled to do so as by no miracle could the plaintiff have fulfilled the condition.) When time is of the essence of the contract, performance must be completed upon the precise date specified, otherwise an action lies for breach. In this case, therefore, the defendant could have repudiated the contract and sued the plaintiff for damages. It did not take that course. That, in my view, constituted sufficient E consideration for the materials left by the plaintiff. As stated in Chitty on Contracts (General Principles), 24th Edn., para. 179.

> The parties to a contract may agree to rescind it at a time when each has outstanding rights F under the contract against the other. In such a case each party generally provides consideration for the other's promise to release him by giving up his own rights under the contract. G

There was hence consideration in this case. I therefore find the defendant not liable to make payment for the materials left at the site.

It follows from the foregoing that the whole of the plaintiff's claim must fail.

I come to the fifth issue, that is, whether the plaintiff was overpaid and whether the H defendant is entitled to recover the overpayment. The defendant alleged overpayment of

50,000/= on the uncompleted foundation and the uncompleted two extra columns. Assuming that the defendant's valuation was the correct one, there appears to be a case of overpayment. The issue is whether the overpayment is recoverable. Generally, any I money paid in pursuance of an abortive contract can be

recovered by an action for money had and received. But that is generally speaking; A otherwise one has to turn to the class of the contract and the terms thereof. In building contracts there is invariably a clause for payment upon certification by the employer's architect. In the instant case, Clause 5(b) stipulated that payments would be made upon certification by Mr. Malangahe. It was agreed on both sides that Mr. Malangahe B certified the payments although I was not shown written certificates. The question, therefore, is whether the defendant was bound by Mr. Malangahe's certificates and this turns on the latter's appointment and the extent of his authority. C

In Gomes v Singh [1964] E.A. 756 it was held that the appellant's architect had limited authority because (1) he was appointed without reference to the contractor; (2) he was appointed when the building was substantially complete and the date of completion had almost arrived; and (3) he was not appointed under the terms of the contract, there being D no provision therein for such appointment. That case is evidently distinguishable from the present one. In this case Mr. Malangahe's appointment was from the beginning part and parcel of the contract. Clause 5(b) also provided that payment would be made upon "certification of the Architect hereinbefore named". This stipulation was not E qualified by another clause. In the circumstances, I find that the appointment of Mr. Malangahe was not a super-added protection to the defendant, but he was clothed with full and unqualified authority to make decisions binding on the defendant. In this view I am further strengthened by the fact that when, on 2 September, Mr. Kihaule met the defendant's representatives to discuss his valuation of the works, they refused to discuss F the matter because Mr. Malangahe happened to be absent. I am therefore of the view that the defendant was bound by its architect's certificates. If there was any error or negligence on the part of the architect, it is the architect, rather than the plaintiff, that is liable to the defendant for any overpayment. It was held in Wisbech R.D.C. v Ward G [1927] All E.R. Rep. 486, that when an architect issues interim certificates, as Mr. Malangahe did, he is not an arbitrator or quasi-arbitrator but an agent and would be liable for any negligence in granting the certificates.

The matter may also be viewed from the point of view of equity. Section 72 of the H Contract Ordinance provides for the repayment of sums paid under a mistake as to a matter of fact. This provision is in pari materia with s. 72 of the Indian Contract Act, 1872 hither-to applicable in this country. The latter provision was considered by the High Court of Uganda in Jamal Ramji & Co. Ltd. v Lint Marketing Board [1962] I E.A. 752 which stated, citing the Privy Council in Sri Shiba Prasad Singh v Maharaja Srish Chandra Nanli (1949), 761.A. 244, that it

was not to be implied (from the section) that every sum paid under a mistake is A receivable no matter what the circumstances may be. There may be in a particular case circumstances

which may disentitle a claimant by estoppel or otherwise. Similarly in K.M.P.R. v The Official Assignee of Madras 1923 Mad. 17, it was observed that the Indian provision has to be qualified by the doctrine of equity in order to render it intelligible. B

On the strength of these authorities, I consider the application of our s. 72 to be subject to equity and I am again of the opinion that the plaintiff is not liable to repay the overpayment. First, the defendant is estopped from denying Mr. Malangahe's authority with whom the plaintiff dealt in good faith. Secondly, this was not a case of total failure C of consideration and there was neither allegation nor suspicion that the entire money was not utilised in the contract works. In the words of Goff and Jones in The Law of Restitution (1966) at p. 25

... it is now established that money paid under a contract later brought to an end is D recoverable, provided that the consideration for the payment has wholly failed.

For the reasons I have endeavoured to state, I find that neither the claim nor the E counter-claim has been established. I dismiss both. The parties will bear their costs.

Order accordingly.

1983 TLR p265

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[zRPz]MWANAHAMISI ABDALLAH & HAMISI v REPUBLIC 1983 TLR 265 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

January 29, 1986 G

CRIMINAL APPEAL 49 OF 1983

Flynote

Criminal Law - Township Rules - Whether applies to Minor Settlements.

Criminal Law - Unnatural offence - Ingredients of the offence. H

Criminal Law - Attempt to commit an unnatural offence - Offence not committed where appellant had not started to undress himself.

-Headnote

The appellant, a male, was by dress, bearing and word representing himself at Manyoni I as a female and was arrested when he so represented himself to a police decoy. When examined at Manyoni District Hospital he was

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LAGAKINGIRA J

found with a wide and tender anus and there was dry semen around the place, A suggesting that he was a homosexual. He was subsequently charged with wearing clothes of a female contrary to Rule 80(22) of the Township Rules and with committing an unnatural offence contrary to section 154 (3) of the Penal Code. In the alternative to the latter count he was charged with attempting to commit an unnatural offence contrary B to section 155 of the Penal Code. He was convicted as charged in the first count and sentenced to three months'

imprisonment. He was also convicted in the alternative second count and sentenced to three years' imprisonment. He then appealed. C

Held: (i) Manyoni has never been declared a Township, therefore the appellant was wrongly charged and convicted under Township rules.

(ii) Obiter: even if the appellant had been properly charged under the Township Rules, the sentence of three months' imprisonment was illegal since the maximum penalty D for the offence is fine not exceeding forty shillings or imprisonment for a term not exceeding one month;

(iii) a person is guilty of committing an unnatural offence if he permits a male person to have carnal knowledge of him against the order of nature; in the instant case there was no such evidence;

(iv) a mere acceptance of a proposal for love making against the order of nature E without any further act directed at the fulfilment of the offence is not sufficient to constitute an attempt.

Case Information

Appeal allowed. F

No cases referred to.

[zJDz]Judgment

Lugakingira, J.: The appellant, a male, was by dress, bearing and word representing G himself at Manyoni as a female and was arrested when he so represented himself to a police decoy. When examined at Manyoni District Hospital he was found with a wide and tender anus and there was dry semen around the place, suggesting that he was in the homosexual habit. He was therefore charged with wearing clothes of a female contrary to rule 80(22) of the Township Rules and with committing an unnatural offence contrary H to s. 154(3) of the Penal Code. In the alternative to the latter count (but very badly framed), he was charged with attempting to commit an unnatural offence contrary to s. 155 of the Penal Code.

He was convicted as charged in the first count and sentenced to three months' I imprisonment. He was also convicted in the alternative second count and sentenced to three years' imprisonment. The sentences were ordered to run concurrently. He then appealed.

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LAGAKINGIRA J

As just stated, the first count fell under the Township Rules. So far as I know, however, A Manyoni has never been declared a township. The appellant was therefore wrongly charged and convicted under those rules. It may also be observed for interest that Manyoni was declared a minor settlement vide G.N. No. 115 of 1937, but I was unable to find any minor settlements rules that made provision for this subject. In 1962 B Manyoni fell under the jurisdiction of the Manyoni District Council by virtue of s. 167 of the Local Government Ordinance, Cap. 333, but I was again unable to establish that the Council was in the habit of making bye-laws or that it ever legislated on the matter. It follows, in my view, that the appellant was convicted of an offence that did not exist in C Manyoni as such. I can only say, without deciding, that probably the appellant could have been charged under s. 176(6) of the Penal Code. His conduct was certainly

indecent. With that said, however, I cannot find my way to sustain the conviction on the first count.

Further, even if the appellant had been properly charged under the Township Rules, the D sentence of three months' imprisonment was illegal. Under Rule 86, the maximum penalty for the offence is fine not exceeding 40/= or imprisonment for a term not exceeding one month. It is evident, therefore, that the appellant got a raw deal.

In the second count, I could find no evidence to sustain a conviction either under s. E 154(3) or s. 155. In the former, a person is guilty of committing an unnatural offence if he permits a male person to have carnal knowledge of him against the order of nature. Although there was evidence, especially the presence of semen, suggesting a homosexual act, there was no evidence that the appellant had permitted it. I therefore cannot fault F the trial magistrate for ignoring the charge as it related to s. 154(3). As regards s. 155, all that is on record is that the appellant accepted a proposal for love making with Cpl. Wine. At that juncture Cpl. Wine identified himself and arrested the appellant. That, in my view, was not sufficient to constitute an attempt. In attempts there should be an act G directed at the fulfilment of the offence. In this case, for instance, it woud have made a whole difference had the appellant undressed himself. But merely to accept a proposal without doing anything to bring it about cannot be said to be an attempt to commit an unnatural offence. The conviction in the second count was therefore equally bad. H

In the result, I allow the appeal and quash the convictions and sentences on both counts. Unfortunately, it appears that the appellant has completed the sentences, but he should otherwise be released from custody in so far as these offences are concerned.

I Appeal allowed.

1983 TLR p268

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[zRPz]JANUARY MAYALA v MAZIGE MKANGALA 1983 TLR 268 (HC)

Court High Court of Tanzania - Mwanza

Judge Katiti J

September 15, 1984

CIVIL APPEAL 75 OF 1983

Flynote

Contract - Customary law - Whether unavoidable accidents can give rise to civil liability. B

-Headnote

The respondent, under a written agreement, hired his hand-saw to the appellant for Shs. 150/= for a month. During the currency of the agreement the hand-saw got lost when a C canoe in which the appellant was travelling was capsized and everything including himself were thrown into the lake. The respondent filed a suit in a Primary Court claiming restitution of the hand-saw or its value of Shs. 2,400/=. The Primary Court dismissed the action, but the District Court,

on appeal, ordered the appellant to compensate the D respondent Shs. 1,200/=, part of the value of the hand-saw. The appellant appealed against the compensation order.

Held: Unless it is a question of strict civil liability which has not been established under customary law, civil liability must be based on proven actionable faulty deviation from an E expected and accepted standard of conduct by the defendant and not on acts of God over which man has no governance.

Case Information

Appeal allowed. F

No case referred to.

[zJDz]Judgment

Katiti, J.: Mazige Mkangala, the respondent herein filed an action in Ilangala Primary Court, against January Mayala the appellant herein, claiming a restitution of a hand-saw, G or Shs. 2,400/= the value thereof, that he had by written agreement between him and the appellant on hire for Shs. 150/= for one month, given to the appellant, who claimedly failed to give back the same, after the said agreed upon period. This action was unanimously dismissed with costs by the trial Court, although the appeal was partly H successful, and the District Court, while sympathising with the appellant, ordered that the appellant compensate the respondent Shs. 1,200/= part of the value of the hand-saw - hence this appeal challenging the award.

This case does cover a compass that is both narrow, with facts not seriously contested. I It cannot be denied, that the appellant did on hire

and agreement take the respondent's hand-saw, for use as from 17/9/1980, but A returnable on or by 20/10/1980. It is also very true that the said hand-saw was never returned on this stipulated day, or beyond. The appellant was straightforward in his defence supported by witnesses in saying, that while he was on his errands for work, in a canoe in which the hand-saw and other work-implements had been loaded, on Lake B Victoria, the lake suddenly got violent and lost temper, their canoe unfortunately capsized, and everything including him, were thrown into the lake. And that, while he was fortunate to come out alive, he could not recover the property that included the hand-saw. C

Was the appellant liable? On the evidence, as I see it, that the hand-saw was lost in the manner narrated by the appellant cannot be challenged. Again on this evidence, negligence cannot be imputed on the appellant to attract attachment of a suitable civil wrong. Again on the evidence, no evidence exhibiting that under the customary law of the area, if any, the circumstances of the case, did give rise to an actionable wrong, was D adduced, nor did the respondent place limitation on the use and place of the said hand-saw, so that the breach of which could attract civil liability. In my view the whole episode was an accident and an act of God over which the appellant had no control; no power, no discretion, and no amount of cautious human care, could change the said course of event. Unless it is a question of strict liability which has not, been established E under Customary Law. It is my view that civil liability must be based on proven actionable faulty deviation from an expected, and accepted standard of conduct by the defendant

and not on acts of God, over which man has no governance. Such being the F case, I am of the view that unavoidable accidents - acts of God - should not give rise to civil liability against the victims thereof. In this case we cannot say the appellant provoked the lake tempers, and we should not punish the appellant, because the consequences of these tempers were to throw him into the lake waters and thus lose a hand-saw. While I do sympathise with the respondent for the loss of the hand-saw, I G find the cause of action unestablished. The appeal is therefore allowed with costs, and the judgment of the District Court reversed, and the judgment of the Primary Court reinstated. H

I Appeal allowed.

1983 TLR p270

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[zRPz]ASHA SOUD SALIM v TANZANIA HOUSING BANK 1983 TLR 270 (HC)

Court High Court of Tanzania - Zanzibar
Judge Augustino Ramadhani CJ

April 9, 1984
MISC. CIVIL APPLICATION 7 OF 1978 B
Flynote
Civil Practice and Procedure - Jurisdiction - Declaratory order - Whether the High Court of Zanzibar has power to grant declaratory decrees.
Constitutional Law - Validity of a proclamation of the Zanzibar Revolutionary Council - C Whether a Revolutionary Council proclamation has a force of law.
Contract - Void contract - Payment of interest a term of the contract, rendered unlawful D being contrary to law - Whether contract enforceable.
Contract - Public policy - Charging of interest prohibited by the government - Whether charging of interest in such circumstances is against public policy.
Contract - Frustration - Failure of a party to perform a contract because of government action.
Statutory Interpretation - Mischief rule. E
-Headnote
In 1959 the mother of the applicant borrowed Shs. 45,000/= from the First Permanent Building Society, a predecessor of the respondent (Tanzania Housing Bank), for building a house which she then mortgaged. The loan was repayable in twenty years, and the F interest chargeable was 81/2% per annum. The borrower made regular payments of Shs 398/= a month to the lender until and including December, 1963, when she stopped. In January, 1964 the Zanzibar Revolutionary Council issued a proclamation prohibiting charging of interest on moneys borrowed.
In January 1967 the borrower died and the applicant was appointed an administratrix of G the estates of her deceased mother. The applicant filed an application in the High Court praying for a declaratory order that she be allowed to redeem the mortgage house after paying the

respondent the outstanding amount, i.e. principal sum plus interest thereon (the latter up to 1964 only) summing up to Shs. 41,356/46. H

Since 1964 the respondent had been insisting by correspondence that the borrower had to continue paying the monthly instalments which included interest. And, since 1964 the government had put the borrower in such a situation that she could not continue paying the instalments.

The learned High Court judge considered various issues including whether the High I Court of Zanzibar has power to give declaratory orders

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RAMADHANI CJ

and whether the contract was void being contrary to law or against public policy. He A also considered interpretation of the proclamation of the Zanzibar Revolutionary Council with regard to payment of interest.

Held: (i) On the basis of ss, 4 and 129 of the Civil Procedure decree and in the absence of express or implied bar the High Court has jurisdiction to grant declaratory orders, it B being within the inherent power of the court;

(ii) by virtue of the revolution the Revolutionary Council had acquired inherent power to promulgate law; proclamations by the Council had, therefore, a force of law;

(iii) the proclamation prohibiting payment of interest made payment of interest C unlawful and the contract between the parties became void under s. 56 (2) of the Contract Decree (Cap. 149);

(iv) at the time of the revolution it was in the good and in the interest of the Zanzibari society that interest charged on loans should be abolished;

(v) as a matter of public policy the applicant should not be found at fault for not D paying interest after the same was prohibited by the government;

(vi) by virtue of Decree No. 5 of 1978, which provided for payment of interest, payment of interest in Zanzibar is no longer unlawful or contrary to public policy; E

(vii) the acquisition of the house by the government operated as a frustration of the contract;

(viii) the proclamation prohibiting lending of money with interest was not intended to prohibit lending of money; it merely prohibited charging of interest on money borrowed. F

Case Information

Application granted.

Cases referred to.

1. Ramji Dewji v Ali bin Hassan [1958] E.A. 297 G
2. Egerton v Brownlow [1853] 4 HL Cas 196
3. Re Beard [1908] 1 Ch. 383
4. Re Jacob Morris (deceased) [1943] N.S.W.S.R. 352
5. Metropolitan Water Board v Dick, Kerr & Co. [1918] A.C. 119

S. El Maamry for the applicant. H

S. Msuya for the respondent.

[zJDz]Judgment
Ramadhani, C.J.: Though I have heard this application in Kiswahili I have decided to write my judgment in English because I feel there are quite a few quotations in English I which I would rather leave
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in that language. Moreover the application itself was in English. A
The Applicant, Asha, is a daughter of one Zuwena Hemed (deceased) who in this judgment I would refer to as the Borrower. The respondent is the Tanzania Housing Bank (THB) which has taken over the activities, assets and liabilities of the First Permanent Building Society. In this judgment I will refer to the latter as the Society. B Thus I will use the Respondent for THB and the Society for the other, for purposes of clarity in the judgment.
In 1959 the Borrower was given by the Society a loan of Shs. 45,000/= for constructing C a house. The loan was repayable in twenty years at an interest rate of 81/2 per cent per annum. The Borrower was paying Shs. 398/= per month. She built a house on Plot No. 11 at Migombani, Zanzibar. The loan was secured by mortgaging the house.
The Borrower paid as agreed up to and including the month of December, 1963. She never paid a single cent thereafter. Correspondence ensued between the Society and D the Borrower regarding payment. Eventually the Borrower passed away on 18th January, 1967. The applicant was granted by this very court letters of administration in the Probate Cause No. 8 of 1968. The Applicant also exchanged a couple of letters with the Society on the issue of the loan and repayment.
The Applicant prays for a declaratory order that she be allowed to pay the Respondent E the outstanding amount i.e. the principal borrowed and interest thereon as up to 1964. This amount has been given as Shs. 41,356/46. The Applicant contends that by the proclamation issued by the Revolutionary Council in January, 1964 charging of interest F on moneys borrowed was prohibited. It was ordered for all loans that only the principal amounts be repaid without interest. It is further contended that the proclamation applied to this mortgage No. ZM 32.
For the avoidance of doubt let me state that this court has the power to grant declaratory orders prayed for. This was so decided by Law Ag. C.J. in the case of Ramji Dewji v G Ali bin Hassan [1958] E.A. 297. He based his decision on section 4 and 102 of the Civil Procedure Decree Cap. 4. Now these are ss. 4 and 129 of Cap. 8 respectively. Admittedly the Honourable Judge referred to art. 24, of the Zanzibar Order-in-Council, 1924 too. I am also aware that this Order-in-Council, as the others, has been H abrogated by the existing Laws Decree, 1964 (Presidential Decree No. 1 of 1964). However, I am of the most considered opinion that Order-in-Council was not the basis of his decision.
Section 4 of the Civil Procedure Decree gives the courts jurisdiction to try all civil cases except those suits in which their cognizance is either expressly or impliedly barred. The I Honourable Judge observed that the Decree is thus not exhaustive as to what suits may be entertained. He
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then referred to s. 102 (now s. 129) which saves the inherent power of the court "to A make such orders as may be necessary for the ends of justice or to prevent abuse of the process of the court".

As there was no law either expressly or impliedly barring the courts in Zanzibar to make declaratory judgments and in reading the two sections mentioned above, His Lordship B felt that the law as obtained in England was relevant. He thus resorted to the reception clause as provided by art. 24 of the Order-in-Council. Whether using the English received law or not, on the basis of the two sections of the Civil Procedure Decree and in the absence of express or implied bar, this court has jurisdiction to deal with such C applications as the present one for it is within the inherent power of the High Court.

Coming back to the suit the respondent objects to the applications. He claims to be repaid the principal and interest thereon up to and including 31st December, 1981 which sum comes up to Shs. 186, 834/50. He contends that heretofore the Applicant, as well as the Borrower, had never used the proclamation as the excuse for non-payment. D Instead both of them had continuously promised to repay the loan with interest and had advanced other excuses for their failure. That part, the Respondent submitted that the proclamation by the Revolutionary Council and relied upon by the Applicant has not the force of law. E

A number of letters have been produced by the Respondent which had been written by the Borrower, the Society, the Applicant and even the Respondent himself. These letters throw light on the issues involved.

The Borrower had complained to the Agenda of the Society in Zanzibar that the house was occupied by the servants of the Revolutionary Government and that no rents were F paid. The agent informed the Society of these complaints by the letters dated 20th March, 1964 and 20th November, 1964. The Society conducted its investigation and found out that the house was occupied by servants of the Ministry of Home Affairs and that a rent of Shs. 500/= was paid monthly to the Borrower by the Ministry of Housing G (of Mainland). This fact was disclosed by the Society in its letter to the Borrower of 17th October, 1966. The Borrower replied to it on 6th December, 1967 stating "I don't remember saying or informing you that I have not been receiving rent. Your agent Mr. T.E.T. Karimjee ... wanted me to sign a letter authorising you to take the rent from the H Ministry of Housing on my behalf ... I pointed out to Mr. Karimjee that it would cause me great financial strain ...". The Borrower then went ahead to enumerate her commitments: She had to provide for the maintenance of her son in England, the house needed repairs and redecoration, she had to pay 25% of the rent as taxes to the I Municipal Council and that she had lost her son and husband within a space of six months. She asked to

allowed to repay by instalment of shs.250/= per month. A

Let me add that in its letter the Society had threatened that "I have now instructed my advocate to take legal action against you for recovery of the full amount of the company's debt". This letter was signed personally by L.B. Van Der Watt, the Manager for Tanzania. B

As I have already narrated the Borrower unfortunately died on the 18th January, 1967. It is not known what response there was to her request. The threat, on the other hand, was never executed. However, the Society wrote to the Applicant on 27th April, 1967, although this letter was not produced in Court by the Respondent. Anyway, the C Applicant responded to that letter on 9th May, 1967. She was pleading for extension of time so that she could sort out her mother's affairs. May be I should let her plea for herself: "So please give us some more time, and I agree to pay from January, 1967".

The Society responded to this letter on the 9th June, 1967 but again the letter was not D produced. However, the Applicant wrote on 15th June, 1967 reiterating that "I have already promised you to pay all the arrears, and I confirm again that I shall pay the arrears". She pleaded again for time, "It is therefore impossible for me to resume paying within 14 days ...". No other correspondence was produced after these. E

It would appear to me from the foregoing that in the two letters of the Respondent which were not produced in court the threat of legal action was repeated and in the second letter a time limit of 14 days was prescribed to augment the threat.

A number of reasons for nonpayment emerge from these letters. First, the Borrower F claimed that she was getting no rents from the occupants of the house who happened to be in the service of the Revolutionary government. She later denied this. Secondly the Borrower pleaded financial difficulties as the impediment and sought the permission of the society to pay Shs. 250/= per month instead. After the death of the Borrower, the G Applicant too advanced two excuses. First, she was awaiting letters of administration to manage her mother's estate. Then, secondly, she alleged a time factor and begged for some elbow room before she was to pay. However, in the course of this application a fifth and a new cause has been submitted: the proclamation by the Revolutionary Council. Now which is the actual reason? H

It is evident to me that this house was occupied by government servants even before the Revolution. The letter of one Raymond who was a tenant in this house in October, 1967 says: I

"This house from the Colonial times, was graded as a `B' grade quarter and it was allotted to me from the Police Housing Pool ....

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It was Government rented quarter and I paid as my precessors had done, a fixed monthly rent A of Shs. 108/35".

This Mr. Benedict Raymond occupied this house as from the 28th February, 1964. He wrote the above quoted letter to the Society asking for a reduction of rents. Presumably B he was seeking a reduction from the rent of Shs. 500/=. That had been paid for by the Mainland Ministry of Housing. For reasons not disclosed in the letter both the said Ministry of Housing and the Ministry of Home Affairs relinquished the responsibility of paying rent for this house. It became the duty of the occupant himself to pay the rents C hence Mr. Raymond's plea for the reduction of rents payable.

Anyway, to stop digressing, it is manifestly clear that a rent of Shs. 108/35 that had been payable is extremely meagre in relation to the monthly payment of Shs. 398/= that the Borrower had

been paying to the Society. She was not getting as rents even a third of D what she was paying to the Society. Yet the Borrower managed to make her monthly payments promptly and without fail up to and including the month of December, 1963! As I have indicated earlier, the Borrower stopped paying after the Revolution.

It would seem to me then, from the above facts and on balance of probabilities, that the E Borrower stopped payment not because she was receiving no rents and neither because of financial difficulties. She stopped for another reason altogether. This other reason would seem to me to be the proclamation by the Revolutionary Council. Unfortunately the Borrower herself is not available to state why she did not gather up F courage and categorically mention the proclamation as her reason. On the part of the Applicant, on the other hand, she did not take any steps towards making any payment despite her promises and the fact that letters of administration were granted to her on the 6th February, 1969.

Even on the part of the Respondent he has been hesitant to take any legal action though G it would appear he thrice threatened so to do. Under the mortgage agreement the Respondent has the right to foreclosure. However, he has not exercised that right. Even this application has not been done by him. Mr. Msuya, the Corporation Secretary of the Respondent, told the court that eventually they would have come to Court. H

I will deal with the mortgage agreements later on but at this juncture it is not out of place, and I do not think that I am wrong, to take into consideration this conduct of the respondent. After all subsequent conduct of a party is relevant under s. 8 of the Evidence Decree, Cap. 5. From this conduct I come to the deduction that the I Respondent also acknowledges the proclamation. I will return to this later. But what

actually was this proclamation of the Revolutionary Council? A

Mr. Ussi Khamis Haji, the then Deputy Attorney General produced Exhibit "A". This is a specially printed piece of paper. At the top and running right across the paper in capitals and heavy print is the following heading: "BARAZA LA MAPINDUZI - ZANZIBAR". Under the heading and to the right has been printed "Nam ...". The B blanks have been filled in by figures "31" in type. Then there is the following sentence: "Kipande cha mazungumzo ya mkutano wa tarehe .....19...". In these blanks the date "19 January, 64" has been typed. All the above except those filled in the blanks have been printed. The excerpt of the deliberations has been typed on the piece of paper as follows: C

"Kodi ya Viwanja vya Nyumba. Ukopeshaji wa Riba na Vitu vya Rehani. Kodi ya viwanja vya nyumba ikomeshwe. Pia ukopeshaji wa riba na vitu vyote vya rehani virudishiwe wenyewe bila ya malipo au deni lolote lile". D

At the bottom and in the right hand corner of the exhibit has been printed "Mwandishi wa KM (BLM)". On top of these words are dots and somebody has signed on these dots. E

After that proclamation all pawn shops were closed down. There was no more charging of interest in money lending. It was at this time that payment of such loans as this came to a

standstill. The Society had about 29 loans similar to this one and apparently for all of these no repayment was done. I will deal with this at length elsewhere. F

It is abundantly clear to me that the Society acknowledged this proclamation. This is so from a memorandum which has been produced in court by the Respondent himself. Mr. L.B. Van der Watt, the Manager of the Society in Tanzania, wrote a memorandum which I feel I can only do it justice by quoting it fully: "Note for Mortgage File No. G ZM.32 4th November, 1964 "Saw Mr. Maggidi, Principal Secretary, Ministry of Housing and informed him of the agreement with the Government whereby the Government preference shareholding in First Permanent (E.A.) Ltd. would be converted to a deferred loan to be identified with the Zanzibar mortgage asset. He was asked whether he could in these new circumstances arrange for the rent for Mrs. El-Harthia's H house to be paid to us for credit of our mortgage account, as any such payment would reduce the Government loss:

"He said that until the formal agreement between the Government and C.D.C. is signed it would be very difficult for him to arrange this because he would have to inform the Minister of I State for Union Affairs, who in turn would refer to the Zanzibar Government.

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I therefore agreed to leave the matter in abeyance until the agreements are signed when a A formal approach will be made to the Ministry of Housing".

Apart from the above quoted memo in the course of entertaining this application Mr. Msuya sent a letter to this court reference SAM/mm of 27th October, 1980. The letter B was in Kiswahili. However, the relevant part of it and translated into English is as follows:

".. there are 29 mortgages (rehani) whose payment ceased since 1964. Talks have often times been held between the Ministers of Finance for the Mainland and the Islands as well as C bank officials with the view of finding a solution for these loans especially on their repayment with interest and the restarting of issuing loans to the people of Tanzania Islands.

I beg to inform the court that the talks among the above mentioned offices are continuing and D a solution will be arrived at.

Hence we beseech your court to adjourn the case until a solution is obtained for all the 29 loans".

It is manifestly clear to me that the Respondent not only knew of the proclamation but E treated it as legally enforceable hence his determination to seek a political solution rather than judicial despite his threats of going to court. Even when the Respondent was finally dragged into litigation by the Applicant he resisted by way of seeking adjournments in anticipation of a political solution. F

Paradoxically the Zanzibar Attorney-General Chambers was well aware that that proclamation has been held to be law. This is evidenced by the letter the A-G wrote to the Principal Secretary of the Revolutionary Council Ref. L.D. 613 of 27th June, 1979. This letter was produced and received as Exhibit "C". It was written in Kiswahili so I G better quote it as such lest I distort it:

"... ingawa iliamuliwa na Baraza la Mapinduzi tarehe 3-2-1964 kukataza riba na uwekaji wa rehani, hakuna sheria iliyotungwa maalum kukataza mambo hayo. Yalibakia ni maamuzi ya

H Kiserikali (policy decision) ambayo yamekuwa yakifuatwa kiutekelezaji hadi havi sasa. Matokeo yake ni kuwa kiutekelezaji na kihali halisi imechukulika na kueleweka kuwa Tanzania Visiwani hapana mikopo ya riba na pia kuweka rehani (mortgage) kwa mujibu wa Sheria. Hivyo ndivyo benki I

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ikiwemo na Benki ya Nyumba (THB) wanavyoelewa kama ilivyokwisha elezwa" (emphasis A provided).

The learned A-G went on that as the Government has now decided that loans be administered under the usual conditions, which include charging of interest, the policy stand has been altered and: B

"Ilivyokuwa hapakuwa na sheria iliyokataza riba basi ni suala la uamuzi kiserikali ambao umetolewa. Hapana sheria ya kurekebisha au kubadili. Labda tu kwa vile ilieleweka hivyo nje, ili kuwapa taarifa na kuondoa mashaka tunaweza kutoa tangazo katika gazeti la Serikali C Benki ya Nyumba na benki zinginezo zinaruhusiwa kufanya shughuli zao Tanzania Visiwani kwa masharti ya kawaida".

This is how the proclamation by the R.C. was understood and taken to be both within D the Isle and without (the Mainland). Thus how it was understood by the Society, the Borrower, the Applicant, the Respondent and the Hon. A-G of Zanzibar. But What actually is the legal status of the proclamation? How does this court view it? E

In this application the Respondent, as represented by Mr. Msuya, contends that the proclamation has no legal effect whatsoever. The court sought the assistance of the A-G on this matter. As already said he was represented by Mr. Ussi Khamisi Haji. With all due respect to him, I hesitate to say that he had assisted the court in clarifying the stand F of the A-G Chambers on the issue. He merely quoted Decree No. 5 of 1978 that the Revolutionary Government has allowed loans payable with interest and that the Respondent has been allowed to operate such loans. His biggest contribution has been the production of copies of the letters which I have already referred to above and the excerpt already quoted (Exhibit "A"). G

This court takes judicial notice of the fact that Zanzibar became independent of the British on 10th December, 1963. On the 12th January, 1964 the peoples of Zanzibar overthrew the yoke of the Sultan. The whole system of law making and the publication H of government notices was thrown overboard. So what was the new system?

On 30th January, 1964 "The Legislative Powers Law, 1964" was promulgated. This provided, inter alia,

"2. The power to make law for the government of the People's Republic Zanzibar is hereby I vested in the President of the Republic

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acting by and with the advice and consent of the Revolutionary Council". A

That piece of legislation was then signed by all the thirty members of the Revolutionary Council led by the Late Mzee Karume. B

Two things stand out clearly from this law. First, the law was promulgated on the 30th January while the revolution was on the 12th January. The question then is where were the legislative powers vested during the nineteen or so days? Second, this law did not constitute the Revolutionary Council. The Council had been there. The law was promulgated by the Council. The preamble of the legislation makes this fact glaringly C obvious:

"IN EXERCISE of its Supreme Authority in the People's Republic of Zanzibar, the Revolutionary Council in conjunction with the Cabinet of Ministers hereby makes the following laws." D

It is abundantly clear to me that the Revolutionary Council and the Cabinet begot this law.

Hence the question I had posed earlier, where were the legislative powers vested precedent to this law, I feel it is answered. The legislative powers were vested in the E Revolutionary Council. It was because of that that "the Legislative Power Law" was promulgated. In fact by promulgating this law, the Council formally declared the powers they inherently had by virtue of the revolution. The success of the revolution vested these powers in the Council. A revolution owes its legitimacy to its success. For the F sake of formalizing and casting it in the legal form that law was promulgated and henceforth all were promulgated as decrees and assented to by the President.

As already mentioned this particular proclamation in issue was given on the 19th January that is before the Legislative Powers Law. The question then is what status does it G have?

As I have already demonstrated that the Council inherently had legislative powers even before the Legislative Powers Law then I have no doubts at all in my mind that this particular proclamation has the force of law. It is legally not wanting solely because it H has not been articulated in the language of a draftsman or that it has not been christened a decree or law. Hence I find that the proclamation of the 19th January, 1964, the excerpt of which has been produced in court as Exhibit A, is law.

Section 56 of the Contract Decree (Cap 149) provides: I

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"(1) An agreement to do an act impossible in itself is void. (2) A contract to do an act which, A after the contract is made becomes impossible or, by reason of some event which the promisor could not prevent, unlawful, becomes void when the act becomes impossible orunlawful". B

In case of the very remote possibility that I might have erred, though I am convinced that I have not, in holding as I do that the proclamation is law, then let me approach the issue from another angle. Decree No. 5 of 1964. 'The Constitutional Government and the C Rule of Law Decree' provides that "... the principal judicial power is exercised on behalf of the Revolutionary Council by the Courts, which shall be free to decide issues before them solely in accordance with law and public policy". If I am wrong in finding that the proclamation is law then what is 'public policy'?

I have failed within the scanty collection I have to obtain any authority on the issue of D public policy in Zanzibar or elsewhere in East Africa. I have then to resort to assistance from English and Commonwealth cases.

In the case of Egerton v Brownlow (1853) 4 H.L. Cas. at p. 196 public policy has been defined as: E

"that principle of the law which holds that no subject can lawfully do that which has a tendency to be injurious to the public, or against the public good, which may be termed, as it sometimes has been, the policy of the law, or public policy in relation to the administration of the law". F

In the other case of Re Beard [1908] 1 Ch. 383 at p. 342 it has been said that:

"The truth of the matter seems to be that public policy is a variable thing. It must fluctuate with G the circumstances of the time".

This pronouncement was followed in the Australian case of Re Jacob Morris (deceased) [1943] N.S.W.S.R. 352. It was propounded that: H

"The phrase `public policy' appears to mean the ideas which for the time being prevail in a community as to the conditions necessary to ensure its welfare; so that anything is treated as I against public policy if it is generally regarded as injurious to the public interest ...".

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Thus I can safely come to the conclusion that 'public policy' is determined by the A circumstances of a given society at a particular historic juncture of the development of that society. Thus at the time of the revolution it was in the good and in the interest of the Zanzibari society that interest charged on loans should be abolished. But there is a second facet to public policy in this case. At the present moment, no body should be B found at fault for not doing that which was prohibited, by the powers that were. Therefore, the contention by the Respondent that the Applicant is to pay not only the principal amount and the interest there-on as stipulated in the contract but also for all the period up to the time of this application is contrary to public policy. C

The only problem in holding that payment of interest was against public policy is when it ceased being so. When was the payment of interest not against public policy? Or is it still contrary to public policy to this day? I would certainly not answer the second question in the affirmative. It is definitely not contrary to public policy now. But when D did it stop being so?

Upon a careful inspection of all the decrees passed since the proclamation there is none talking about charging or payment of interest on loan except Decree No. 5 of 1978 which was referred to this Court by Mr. Ussi. This is 'The Government Loans, Stocks, E Grants and Guarantees, Decree, 1978: The decree specifically provides for the payment of interest half-yearly in paragraph (f) of section 5. It is also mentioned in divers other sections. I could safely deduce that on the day this decree came into force payment of interest ceased to be contrary to public policy. No date has been provided F for the coming into force of this decree. However, under section 6 of the Interpretation Decree, Cap. 1 this date is deemed to be the date the decree was

promulgated in the 'gazette'. This was 19th August, 1978 as Notice No. 146 of 1978 in the 'Gazette' No. 5151 of 1978.

There is yet a third aspect to this issue. I asked Mr. Msuya about frustration and he said G that since the house which is the subject matter of the contract exists, there cannot be frustration of the contract. However, there are two points which bring up the issue of frustration. It would seem to me in the first place that there was a period when this house was occupied by government servants without any payment of rent to anybody. H Mr. Raymond in his letter, which I have already referred to, wrote that he had been in the house from 28th February, 1964. The Society in their letter of 17th October, 1966 said that from the information they had received the Borrower had been receiving rents to the tune of Shs. 500/= per month from July, 1965. No evidence was given to the I court as regards rent for the period between the date Mr. Raymond

occupied the house and July, 1965, approximately sixteen months. For this period it A does not seem to me that the Borrower had any control over this house. I have this feeling from the fact that on 22nd June, 1966 the Commissioner of Police (Zanzibar) wrote to the Borrower demanding that the house be renovated. This was virtually a whole year since rents started being paid by the Ministry of Housing (July 1965). Yet B the Society's Agent wrote to the Society on 14th July 1966 giving information of the demand and adding that:

"Neither the Borrower nor we are in a position to go and inspect the house to see the state of C repairs ...".

Now if during this period when rents were being paid, both the Borrower and the Society's Agent had no access to the house, then one can safely conclude that D inaccessibility was even more thorough at the time when no rents were paid. Hence the Borrower did not have any control over the house and she was infact a stranger to it.

My mind is pretty much cognisant of the fact that, and I am in complete agreement with Mr. Msuya that, payment of rents was not a condition precedent to the repayment of the loan. However, I have mentioned the payment of rents to show that for almost sixteen E months the Borrower had absolutely nothing to do with the house. The Society was aware of this. Thus though physically the house was present and existing I would hesitate to say that it was so constructively. The house was taken away from the Borrower without his consent.

But was the continual existence of the house (physical, constructive or otherwise) the F basis of the contract? I would answer that question in the affirmative. In the first place by its very essence this mortgage was the transfer of the legal estate in the house to the Society for purpose of securing the repayment of the loan and interest thereon. Hence I G am of the well considered opinion that the 'existence' of the house was the basis of the agreement. In the second place the mortgage agreement provided in clause (2) of article 3:

"That the Borrower will during the continuance of this security keep all buildings or other H improvements now or for the time being comprised in the Mortgage Property or Subject to this security in good and substantial repair and "for the purpose of ascertaining

whether the said building or other improvements are for the time being in good and substantial repair the I Society may from time to time survey the same or cause the same to be surveyed ...".

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This testifies to the need of maintaining the existence of the house. However, a mortgage A consists of two things: a personal contract for payment of a debt and a disposition or charge of an estate. Now the continuation of the property refers to the latter. Hence the frustration described above will thus not refer to the personal contract for the payment of the debt. B

But what is the debt to be paid? Is it the principal amount alone or the principal amount plus interest? I do not have any authority but it is my most considered opinion that the debt surviving the frustration is the principal sum only. The effect of frustration is to discharge the parties from further performance of the contract. The principal amount is C the sum that the Borrower has actually received from the Society. The payment of interest is to the Society as the continuance of the house is to the Borrower.

However, this simple state of affairs is complicated by the fact that as from July 1965 the Borrower started receiving rents for the house. Instead of dealing with this aspect let me D first return to the second ground of frustration.

This house is very close to the official residence of the Honourable Mzee Aboud Jumbe. It was thus taken over by the Revolutionary Government in 1972 when Mzee Jumbe E became the Chairman of the Revolutionary Council and the President of Zanzibar. The Ministry of Lands, Construction and Houses valued the house at Shs.72,850/50. This was the amount of compensation that was awarded to the Applicant. The maximum amount that the Respondent could claim, I feel is this amount of compensation awarded. The acquisition of this house by the government operated as a frustration of the contract. F (Metropolitan Water Board v Dick, Kerr & Co. [1918] A.C. 119).

"I have been informed that the owner of the above plot Mrs Zuwena Hemed died on 18th January, 1967. In view of this all cheques issued by the defunct Ministry of Housing in her G favour since January, 1967 are all stale. I shall be grateful, therefore, if you will let me know the present arrangements for the payment of the house rent". H

It does not seem that there was any response to that letter and the matter was left in abeyance.

There is a final aspect to the whole of this issue of this house. As I have already commented this issue has been brought to court by the Applicant who already has the money in her possession. The reason advanced by the Applicant is that she wants this I matter to be settled once

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and for all so that her mother's soul would rest in peace wherever it might be. One A would have expected, that the Respondent would have taken the initiative. The answer of Mr. Msuya, as I have already said, was that the Respondent would have come to court eventually. Admittedly the period of limitation of a suit by a mortgage for foreclosure has not run out. Under Item 136 of the Schedule to the Limitation Decree B Cap. 12 this period is sixty years

from the time when the money secured by the mortgage becomes due. Nevertheless the Respondent and the Society before him could have invoked the provisions of the mortgage agreement:

Clause (6) of article 4 of the agreement provides as a follows: "No power (whether statutory or C otherwise) of leasing or agreeing to lease or accepting surrenders of leases shall be exercisable by the Borrower without the consent in writing or the Society".

This house, as evidenced by what has already been said in this judgment, has been D leased even before the Revolution of 1964. No evidence has been adduced showing that there was any written consent of the Society. In fact no such consent was ever given. The Society and the Respondent after him condoned this breach. E

Clause (7) of the same article 4 gave the Society power of sale and power of appointing a receiver. Then clause (8)(a) goes on to provide thus:

"During the continuance of this security the Society may without any further consent from or F notice to the Borrower do all or any of the following acts or things:

(i) Enter into possession of the Mortgaged Property or any part or parts thereof;

(ii) Exercise the said power of appointing a receiver; G

(iii) Exercise the said power of sale;

(iv) Let or demise the Mortgaged Property or any part or parts thereof for such tenancy or term of years at such rent and generally upon such terms as the Society in its absolute discretion shall think fit and any tenancy or lease created H in exercise of this power may be made in the name of the Borrower and the Borrower hereby appoints the Society or its nominee to be the attorney of the Borrower to sign or otherwise execute any document for the purpose of creating any such tenancy or demise". I

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RAMADHANI CJ

However, there is a proviso that these powers could only be exercised if one of three A situations existed. Two of those situations are relevant here and I quote them in full:

"(i) Default shall have been made by the Borrower for one calendar month in the payment of some instalment fine of other money payable here, under or of the moneys owing hereunder B in accordance with a notice given to him as aforesaid or under the rules of the Society, or

(ii) There shall have been a breach by the Borrower of some covenant contained in this mortgage ... on the part of the Borrower to be performed and observed other than and besides the covenants for the repayment of the said principal sum and interest hereinbefore contained". C

It is evident to me that the Society could have chosen to invoke the provisions of the agreement and particularly exercise the powers under clause 8 after such breaches as renting the house without the written permission of the Society. Anyway may be it is beyond my province to probe into this failure. But this failure is significant and has to be taken note of. D

I have dwelt at some length on the other aspects of this issue as an alternative, should I have erred in holding that the proclamation of 19th January, 1964 has the force of law. Now I have to come back to it again. What is the amount of money owing under that proclamation? E
The Applicant has said that she is liable to pay Shs. 41,356/46. It has never been explained to me how that figure has been arrived at. The Applicant could not do that. The prayer for the declaratory order is contained in an affidavit drawn and sworn before Mr. Said H. El Maamry, Advocate, Notary Public and Commissioner for Oaths. As F advocates are not allowed to appear before this court, he did not. All that has been said is that "the balance of the principle amount together with interest as in 1964 amounting to Shs. 41,356/46". The Respondent on the other hand did not put up any figure to that effect
But what does the proclamation actually provide? It says:"... Pia ukopeshwaji wa riba G na vitu vyote vya rehani virudishiwe wenyewe bila ya malipo au deni lolote lile".
By construing the proclamation literally it would mean that all who borrowed by pledging property were to be given back their properties and they were freed from the obligation to repay what they had borrowed. In this case the Borrower was to retain the house H and was not to repay the Society even the principal amount. After very full deliberation, and under a very heavy and solemn sense of responsibility of justice I cannot accept that that interpretation is what the Revolutionary Council had in mind. Then what did they I intend? The intention was to prohibit the lending of money with interest. The intention was not to prohibit
1983 TLR p286
completely the lending of money. Nor was the intention to ban pledging of property to A secure loans. So in construing this proclamation I have to use the mischief rule. The payment of interest was the evil that was combatted. So the Respondent be paid the balance of the unpaid principal amount as it was on the date of this proclamation. Costs to be born by the Respondent. B
Application granted.
1983 TLR p286
C
[zRPz]HOKA MBOFU v PASTORY MWIJAGE 1983 TLR 286 (HC)

Court High Court of Tanzania - Mwanza
Judge Mushi J

November 30, 1983
CIVIL APPEAL 94 OF 1983 D
Flynote
Family Law - Concubinage - Concubinage for 16 years - Whether s. 160 of the Law of Marriage Act, 1971 applicable where there is no allegation of presumption of marriage.
Customary Law - Concubinage - Division of property upon termination of concubinage - E Rule 93 and 94 of the Customary Law (Declaration) Order G.N. No. 279 of 1963.

-Headnote

The appellant was appealing against the decision of the District Court of Magu which reversed the Nyaluhande Primary Court decision which awarded the appellant Shs. F 5,900/= being her share of property acquired during her concubinage for 16 years with the Respondent. The District court purported to reverse the decision of the Primary Court on account that there could be no division of property between the parties if their presumed marriage had not been dissolved. The parties had not alleged presumption of marriage, hence this appeal. G

Held: (i) Where there is no allegation of presumption of marriage, section 160 of the Law of Marriage Act, 1971 cannot be invoked merely on account of concubinage association;

(ii) rule 93 of the Customary Law (Declaration) Order, G.N. No. 279/1963 is applicable in the division of property acquired during concubinage association. H

Case Information

Order accordingly. I

No case referred to.

1983 TLR p287

MUSHI J

[zJDz]Judgment

Mushi, J.: The appellant, Hoka Mbofu, filed a suit in the Primary Court claiming half of A property earned or acquired during the period of 16 years in which she lived with the respondent. The Primary Court awarded the appellant Shs. 5,900/= as her share. The respondent, Pastory Mwijage, appealed to the District Court. The learned Appeal Magistrate scrutinized the evidence and found that since the parties lived together in B concubinage for 16 years, the provision of section 160 of Marriage Act No. 1971 applied and that on the application of that provision the parties were presumed husband and wife. The learned magistrate went to conclude that as there had been no divorce, the Primary Court could not divide the property acquired during that period. The court C quashed the proceedings and declared that the parties were husband and wife and it was upon an aggrieved party to file a suit for separation or divorce. The appellant was dissatisfied with that decision and she has appealed to this court.

Before this court, the appellant stated that she did not agree with the court's decision that D she was a wife of the respondent since she was never married to him and thus she cannot file any divorce. The respondent agreed that they did not perform any ceremony of marriage although they lived together for 16 years or so.

It is an accepted fact that the parties in this case were not married by any known law of E Tanzania. There was no customary, Civil or religious marriage. The parties only lived in concubinage. If the association is to be given the status of constituting marriage this can only be done by invoking section 160 (1) of the Law of Marriage Act No. 5 of the 1971 which reads: F

"Where it is proved that a man and a woman have lived together for two years or upwards, in such circumstances as to have acquired the reputation of being husband and wife, there shall be a rebuttable resumption that they were fully married". G

Since there were allegations that the parties had lived together for about 16 years, the learned appeal magistrate felt that the case was fully covered by section 160(1) of the Marriage Act

quoted above. But was it necessary to invoke the Marriage Act provisions? I am of the settled view that it was not necessary to apply the above H provision. Right from the institution of the claim, the appellant has not asserted that she was ever married by the respondent. She has maintained that her association with the respondent was purely that of concubinage. But she says that during the concubinage association, she and the respondent acquired some property/money, and that since I respondent has decided to terminate that

association, the appellant has no objection except that she should get what they acquired A together. In her evidence in the original court and her statement before this court, she has not based her claim on her association having acquired the status of a wife. Similarly the respondent's evidence in the Primary Court did not assert that the appellant was his wife. The respondent merely stated how it came about that the appellant came B to stay with him. In fact from careful scrutiny of the respondent's statement, it would appear that although the parties were living under one roof, they were each leading an independent life. For example the appellant lived with the children of her brother against the respondent's wish and also according to the respondent the appellant had a different C plot which she cultivated separately with the help of the children of her brother. In this regard, even if section 160(1) of the Act was to be invoked, it would have been necessary to look more into the lives of the parties rather than the mere fact that they lived under one roof. The respondent has not claimed that the appellant is his wife, in D which case the appellant's claim could not be entertained unless there was divorce or separation. The whole claim has been made outside the Marriage Act and without requiring its assistance in order to be legally blessed. The claim is maintainable under customary law because there is no mention of section 160(1) of the Marriage Act in the E whole trial. Rule 93 and 94 of Local Customary Law (Declaration) order of Government Notice Number 279 of 1963 are applicable in this case. Rule 93 authorises the property acquired during concubinage association to be divided between the parties if they decide to part company and section 94 sets out the manner in which the property shall be divided. F

For the above reasons, this appeal is allowed. The district court decision is set aside and the Primary Court decision is restored. As regards the amount awarded, there seems to be sufficient evidence to support the claim and the amount is reasonable and the same remains undisturbed. G

Each party to bear her/his costs in this court.

This judgment to be certified to the original court for reading to the parties.

H Order accordingly.

[zRPz]GAI IPENZULE v SUMI MAGOYE 1983 TLR 289 (HC)

Court High Court of Tanzania - Mwanza
Judge Mwalusanya J

May 25, 1985
CIVIL APPEAL 101 OF 1982 B
Flynote
Family Law - Claim of damages for adultery - S. 74(1) of the Law of Marriage Act, 1971.
Family Law - Compensation for adultery - Quantum of damages - Custom of the community to which the parties belong - S 74(2) of the Law of Marriage Act, 1971. C
Evidence - Proof of adultery - Whether direct evidence is only admissible evidence.
-Headnote
The appellant was successfully sued at Nyambiti Primary Court by the respondent in a suit for a claim of damages for adultery. The respondent was awarded ten head of cattle D as damages. The appellant's appeal to the District Court of Kwimba was unsuccessful, hence this appeal.
Held: (i) It is not the law that direct evidence of persons caught in flagrante delicto is the only admissible evidence to prove adultery. Very rarely adultery is proved by direct E evidence; the common practice is that adultery is proved by circumstantial evidence;

(ii) section 74(2) of the Law of Marriage Act, 1971 provides that in assessing damages for adultery, the court shall have regard to any relevant custom of the community to which the parties belong. F
Case Information
Appeal dismissed.
No case referred to. G
[zJDz]Judgment
Mwalusanya, J.: The appellant Gai d/o Ipensule was successfully sued at Nyambiti Primary Court by the respondent Sumi d/o Magoye in a suit for a claim of damages for adultery. The respondent was awarded ten head of cattle as damages. The appellant's appeal to the District Court of Kwimba did not bear fruit and hence this current appeal. H
The appellant in her memo of appeal has vigorously protested against the decision of the trial court arguing that it was against the weight of evidence. She said that there was no direct evidence of adultery adduced except hearsay evidence. She further boldly asserts I that even the hearsay evidence from the respondent's husband was admitted to prove the
1983 TLR p290
MUSHI J
plaintiff's case. In short appellant contends that the decision of the trial court was based A on nebulous inferences if not speculation.
Admittedly the way the suit was proved at the trial was novel and unusual but by no means despicable. What happened was that the respondent's husband Mafayo s/o Shimiji was caught in adultery with the appellant. That was when the adulterers were at B Salawi village for a visit. The appellant's husband Kaswahili s/o Lutoja sent them to the ten cell leader of Salawi village for redress. The respondent's husband admitted adultery and was condemned to pay ten heads of cattle which he agreed to pay. C

When the respondent's husband returned home at Chanela village, his wife got wind of the embarrassing news. She also went to claim damages at the ten cell leader from the appellant. Appellant admitted adultery but prayed for the appearance of respondent's husband at the sitting. The matter was referred to court. At the trial appellant admitted D adultery but again questioned whether it was proper to be condemned in the absence of the respondent's husband in court. The trial court held that it was quite proper to proceed even if respondent's husband was absent.

Like the first appellate court I am unable to accede to the argument of the appellant E about absence of direct evidence. Whether adultery has been proved is purely a question of fact. It is not the law as suggested by the appellant that direct evidence of persons caught in flagrante delicto is the only admissible evidence to prove adultery. Very rarely is adultery proved by direct evidence; the common practice is that adultery is F proved by circumstantial evidence. However in this particular case, appellant herself admitted adultery. Now what more else would you need? In law nothing more was required to prove the case for the plaintiff. There was no need to have the respondent's husband called when the appellant admitted the act of adultery. There can be no doubt therefore that this appeal is devoid of merit. G

As regards quantum of damages I was initially of the view that ten head of cattle was too much and rather on the high side. I thought it offended s. 74(1) of the Law of Marriage Act No. 5 of 1971 which prohibits the award of punitive or exemplary damages. But s. H 74(2) of the same law states that in assessing damages for adultery, the court shall have regard to any relevant custom of the community to which the parties belong. In this case both parties are Sukuma by tribe. The trial court which sat with Sukuma assessors appears to be of the view that ten heads of cattle is the appropriate quantum of damages I for adultery in this part of the country. Even respondent's husband was condemned to pay the same amount by the ten cell leader of Salawi village. So the

figure arrived at appears to be appropriate and in harmony with Sukuma customary law. A

Be that as it may, I dismiss this appeal with costs.

B Appeal dismissed.

C

[zRPz]CELESTINA PAULO v MOHAMED HUSSEIN 1983 TLR 291 (HC)

Court High Court of Tanzania - Bukoba
Judge Mushi J

September 5, 1985
CIVIL APPEAL 223 OF 1982
Flynote

Probate and Administration - Religion - Whether the difference of religion can affect an ascertained will in appointing an administrator of an estate.

Probate and Administration - Clan linkage - Whether the difference in clan linkage can prevent a person from administering the property of a deceased person of another clan.

-Headnote

The appellant appealed against the decision of the District Court of Bukoba which reversed the decision of the Primary Court which appointed the appellant the administrator of the estate of Sawia d/o Balegu on the basis of oral evidence and a written will. The District Court had reversed the Primary Court's decision purportedly because the appellant was of different religion and clan from that of the deceased.

Held: (i) Where there is an ascertained will the same must be respected in letter and spirit notwithstanding the difference of religion between the deceased and the appointed administrator;

(ii) where personal property is bequeathed the person bequeathing the property has an absolute right to choose an administrator of her own choice and the clan has no right to interfere with the same.

Case Information

Appeal allowed.

No case referred to.

[zJDz]Judgment

Mushi, J.: This is an appeal by Bi Selestina Paulo. The appellant filed an application in the Primary Court seeking to be appointed an administrator of the estate of the late Sawia d/o Balegu.

1983 TLR p292

MUSHI J

There is no dispute as to the beneficiary of the estate. The beneficiary is Zainabu d/o A Mohamed Hussein. In the Primary Court evidence was adduced which included oral testimony from the close friends of the deceased as well as documentary evidence in the form of a letter which the deceased had written to the appellant. The respondent, B Mohamed Hussein, did not object to anything other than claiming that he should be the administrator of the estate because he was the father of the beneficiary, Zainabu, who was at that time eight years old. The respondent did not claim that he was appointed by the deceased to be the administrator of the estate of the deceased but he thought he was entitled. The Primary Court considered the evidence and found it conclusively C established that the deceased herself appointed the appellant the administrator of the estate and accordingly confirmed the appointment of the appellant as the administrator of the estate of Sawia d/o Balegu. The respondent was ordered to account for the money D he had received and hand the same to the appellant. The respondent appealed to the District Court which reversed the Primary Court decision and appointed the respondent the administrator of the estate of the deceased Sawia d/o Balegu against the will of the deceased. The appellant was dissatisfied by the District Court decision and hence this appeal. E

The appellate magistrate was grossly wrong in his decision. For reasons known to himself he took into account completely strange matters to defeat the will of the deceased - Sawia d/o Balegu. It is a known fact that an ascertained will of the deceased must be respected in both letter and spirit. The learned district magistrate did not say that the deceased had not made the will appointing the appellant an administrator of the F estate, but tried to find uncalled-for grounds which according to him would make it impossible for the appellant to be an administrator of the estate. First he invoked religion. He said that the deceased could not appoint the appellant as administrator of her estate because the appellant was of different religion and that her estate must be G administered according to Islamic law. Secondly the appeal magistrate brought in clan. He said that the appellant was of a different clan and thus she could not be an administrator of the property of the deceased. Finally the appeal magistrate said that the beneficiary was the daughter of the respondent. According to the appellate magistrate, H because of the above reasons, the respondent was the proper person to be the administrator of the deceased estate. This was a regrettable decision.

I said earlier that it is an established principle that the will of the deceased must be respected in letter and spirit. There was no dispute that the deceased in her free will and I fully aware of what she was doing she decided to appoint the appellant the administrator of her estate and

she did so fully knowing that she was moslem and the appellant was of another religion. A The property which she bequeathed was her personal property and had nothing to do with her clan. She had the right to choose her beneficiary and she also had absolute right to choose the administrator of her own choice. She was aware also that the beneficiary was the daughter of the respondent but she did not wish the respondent to be the B administrator for reasons known to her. Why should the appellate magistrate purport to tell the deceased what she should have done against her clearly expressed wish? The Primary Court decision was very sound and reasonable. This appeal must be allowed. The District Court decision is set aside. The Primary Court decision is restored. The appellant is to get costs in this court and costs below. C

Appeal allowed.

D

[zRPz]MARIAM TUMBO v HAROLD TUMBO 1983 TLR 293 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

January 19, 1983 E
MATRIMONIAL CAUSE 1 OF 1982
Flynote

Family Law - Petition for Divorce - Requirement of reference to Marriage Conciliatory Board prior to petition - S. 101 of the Law of Marriage Act, 1971. F
Family Law - Divorce - Evidence of breakdown of marriage - Cruelty - Constructive desertion - Adultery - S. 107 of the law of Marriage Act, 1971.
Family Law - Custody of children - Welfare of infant children - Independent opinions of children- Age of children to be taken into account. G
Family Law - Division of matrimonial assets - Meaning of work towards the acquisition of assets- Whether housekeeping is contribution to acquisition of matrimonial assets. H
-Headnote
The parties to this proceeding were married under Christian rites in 1958 and have seven issues of the marriage. The petitioner sought dissolution of marriage alleging adultery, cruelty and desertion. She also prayed for custody of the youngest five children and for the division of assets. The respondent has cross-petitioned for divorce, alleging cruelty I and desertion. He also prayed for custody of the youngest three children.
1983 TLR p294
LUGAKINGIRA J
Held: (i) Under paragraph (f) of the proviso to s. 101 of the Law of Marriage Act, 1971 A the court may dispense with reference to the Marriage Conciliatory Board where it is satisfied that there are extraordinary circumstances which make reference impracticable;

(ii) it is one thing to tolerate a spouse's misconduct, it is another to put up with B the consequences thereof; in contemplation of this the legislature enacted s. 85 of the Law of Marriage Act, 1971 that evidence of misconduct by a husband or a wife shall not be inadmissible in any matrimonial proceeding on the ground that the misconduct was condoned by the aggrieved spouse; C

(iii) when reprehensible conduct or departure from the normal standards of conjugal kindness causes injury to health or an apprehension of it, it is cruelty if a reasonable person, after taking due account of the temperament and all the other particular circumstances, would consider that the conduct complained of is such that this spouse should not be called on to tolerate it; D

(iv) it is settled that where one spouse behaves in such a manner that the other is virtually compelled to leave, the former may in law be the deserter; it is imperative for there to be conduct which amounts to dismissal from the consortium; E

(v) in matters of custody the welfare of the infant is of paramount consideration, but where the infant is of an age to express an independent opinion, the court is obliged to have regard to his or her wishes;

(vi) in accordance with s. 114(2)(b) of the Law of Marriage Act, 1971, the F court is required in exercising its power of division of assets to have regard to the extent of contributions made by each party in money, property or work towards the acquiring of the assets; housekeeping is a conjugal obligation and cannot be equated to work which refers to the physical participation in the production of the asset itself.
Case Information

Order accordingly. G

Cases referred to:

1. Khan v Khan [1973] LRT n. 57.
2. Russell v Russell [1897] A.C. 395 (H.L.).
3. Gollins v Gollins [1963] 2 All E.R. 966. H
4. Buchler v Buchler [1947] 1 All E.R. 319.
5. Marwa v Akeyo [1977] L.R.T. n. 39.

D.C. Mbezi for the respondent. I

Editorial Note: See the Court of Appeal decision in Bi Hawa Mohamed

1983 TLR p295

LUGAKINGIRA J

v Ally Sefu (in this volume), that since the welfare of the family is an essential component A of the economic activities of a family man or woman it is proper to consider contribution by a spouse to the welfare of the family as contribution to the acquisition of matrimonial for family assets.

[zJDz]Judgment

Lugakingira, J.: The parties to this proceeding went through a Christian ceremony of B marriage at Itigi in November, 1958 and cohabited at various places, including Musoma and Singida. There are seven issues to the marriage, the last having been born in 1970. On account of the events set out below the marriage broke down in 1981 and the wife returned to her parents. She then petitioned for dissolution of the marriage alleging C adultery, cruelty and desertion. She also prayed for custody of the youngest five children and for the division of assets. In reply to the petition, the husband denied the charges levelled against him. He then cross-petitioned for divorce, similarly alleging cruelty and desertion. He prayed for custody of the youngest three children. In this D judgment I will refer to the husband as respondent. I was satisfied that there was no collusion in bringing the proceeding.

It can be said with a degree of certainty that the trials that beset this union surfaced in 1977, but the roots can be traced back to 1970. In that year, after the birth of the last child, the petitioner was taken victim of unpredictable menstrual visitations. This E development cast a shadow in the marital relationship for it meant that the petitioner could no longer render as before her conjugal obligations. The medical evidence tendered before me indicates that the petitioner's state assumed malignant proportions in the second half of 1977. She was then referred to Bugando Hospital at Mwanza. The F parties were at that time stationed at Musoma, the petitioner being a teacher and the respondent a security officer. Unfortunately, I was not appraised as to the degree of the petitioner's recovery, but I sincerely hope that she is now relieved of what must have been an irritating experience. G

However, while the experience lasted, and early in 1977, the respondent decided it was time he had another "wife". I will refer to this one as the second woman. The respondent announced his intentions to the petitioner. The latter protested strongly but her protests met with increased determination. The respondent vowed that he would go H ahead with his intentions even if it meant his death. He told her that she could go away if she was not disposed to the

idea. In any case, he taunted her, he could not take advice from a "mvaa mlembe", i.e. one perpetually with a tampon pad. The second woman was also a teacher and stationed at Bunda. The respondent went ahead and paid bride-price to her parents in March, 1977. He then "married" her but she remained I at Bunda.

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LUGAKINGIRA J

Later that year they had a child. In September, 1978, the respondent was transferred to A Singida. He moved to his new station with the petitioner and the second woman, both of whom he installed in the same house. The second woman delivered another child in November, 1978. She was pregnant at the time of the petitioner's departure in July, 1981. B

Life took a more dramatic turn when the parties moved to Singida. The respondent became increasingly attached to the second woman and increasingly alienated from the petitioner and her children. Hence, whenever it was the second woman's turn to host him, he would overshoot his stay. When it was the petitioner's turn, he would still remain C in that woman's room until very late, then come and drop in the petitioner's bed and straight go to sleep. Early in the morning he would retire to the second woman's room, there to while away the remaining moments of dawn. The petitioner further claimed that the respondent took to beating her and her children on baseless and endless complaints D by the second woman. He would sometimes do so right in the presence of that woman. And whenever he did so, he would tell the petitioner that he was over with her and threaten to kill her if she would not leave. The petitioner told me that she complained to various persons and places, including the Area Commissioner, the Regional Police Commander, the respondent's father, the respondent's office, the E Primary Court and the District Court, but got no assistance. The tragedy of it all was that she got a beating whenever the respondent learned that she had complained against him. On one such occasion, he broke her nose. On 9 July, 1981, the petitioner proceeded to Tabora for an interview. In her absence, the respondent discovered that F their second child, a daughter, was pregnant. He also discovered that their fourth child, another daughter, was fraternising with a guard at the Regional Commissioner's residence. She was cooking food and taking it to this guard from provisions in the respondent's house. The respondent picked up the telephone and rang the petitioner at G Tabora to inform her of these discoveries. There was an argument for he believed, and so told the petitioner, that she already knew of these developments but had kept him in the dark. It was therefore with trepidation that the petitioner returned to Singida on 24 July.

It was common ground that there was no quarrel when she arrived. After dinner the H petitioner retired to bed. Not much later the respondent came into her room, looked into the wardrobe and left. He returned shortly, hung up a trousers in the wardrobe and left again. He returned yet again and on this occasion he asked the petitioner where his bullets were. The respondent possessed a pistol. The petitioner did not know where I they were and told him so. The respondent got out, entered his vehicle and drove off. The petitioner sensed danger. She told the Court

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LUGAKINGIRA J
that when she recalled the many times the respondent had threatened to kill her, his A fulmination at the tragedy and misconduct of their daughters, and for which he held her responsible, and now that he was looking for bullets, she believed that her life was in imminent danger. She fled and spent the night in the hedge. When the respondent returned he discovered that not the petitioner only, but their fourth, sixth and seventh B children had also vanished. He had already expelled the second child who had become pregnant. He reported the disappearances to the police that same night. Next morning the petitioner turned up at the house of the Regional Planning Officer. She requested him to call the Regional Commissioner, the Regional Development Director and the Regional C Police Commander in order that they might intercede with the respondent for her. The latter two were found, but efforts to get the respondent initially proved fruitless. In the interim they advised the petitioner to return to her parents at Itigi until the respondent had been found and talked to.

She left for Itigi. I gathered from the respondent that he was subsequently found. When D told of the position he said all he wanted were his children. It is not clear where the children were found, but they were duly returned to the respondent on 26 July. The petitioner remains at Itigi todate. In August she was joined by the fourth and fifth children. The sixth and seventh joined her in November. Early last year the third child E followed suit. Meanwhile, the petitioner received no word of the promised intercession. She therefore twice wrote to the respondent to consent to her being posted elsewhere but got no reply. She remains unemployed todate. The respondent even refused to procure school transfer certificates for the fourth to seventh children. But somehow they F managed to continue with their education. The petitioner visited and wrote to various offices seeking assistance in her problems. She was invariably advised to take her "shauri" to court. She filed her petition on 19 August, 1982. She was unrepresented. The respondent was represented by Mr. D.c. Mbezi. G

As already stated, the respondent denied the petitioner's charges, except that of adultery where he pleaded condonation. In turn he alleged that the petitioner had turned the children into delinquents. The second child had become pregnant and the fourth later became so. The third had become a truant, a thief and a bhang smoker. He also H accused the petitioner of seeking assistance in witchcraft. He produced certain articles in that connection to which I shall later refer. The petitioner in turn denied these charges.

A number of issues were framed at the start of the trial centering on the matters already I stated or alluded to. Evidence was also led on the issue of reference to the Marriage Conciliatory Board. Since the

respondent's side expressed doubts on that aspect, I propose to begin with that issue. A

On 26 July, 1982 the petition saw the chairman of the Itigi Church Conciliatory Board to whom she narrated her problems. On 1 August, the chairman called a meeting of the Board but a quorum was not reached. He convened another meeting on 5 August and B on this occasion there was a quorum. The Board heard the petitioner and after weighing a number of difficulties,

in particular that of summoning the respondent, they advised her to take the matter to the Singida Board. On 6 August, the petitioner proceeded to Singida and saw the Board Chairman there. He listened to her but in turn C advised that the matter be dealt with at Itigi where the marriage was solemnised. She returned to Itigi and on 8 August the Itigi Board met again. It seems that a sort of apprehension attached to the respondent's office. The Board literally recoiled at the thought of summoning a security officer. In the words of the petitioner, "They tried to D discuss how to summon the respondent. They thought if the respondent were to appear, there would be no guarantee for my security. They therefore decided to dispense with the respondent and gave me a letter to the court". In deciding as they did it seems also that the Board was influenced by the apparent gravity of the matrimonial difficulty presented to them. They did not see the prospect of reconciliation. It further appears E that this apparent scare was not confined to the Board alone. The petitioner alleged that even the District Court of Manyoni declined to entertain her petition claiming that the respondent could not be sued in the region he worked! F

The question arises whether the steps taken by the petitioner amounted to reference to the Board. It could be discerned from Mr. Mbezi's cross-examination that he doubted whether these steps amounted to a reference. But that was all I mean: doubts only. I did not otherwise have the advantage of learning his reasons. There were no arguments G at the end of the trial. I have no doubt, however, that the question is an important one, and in so far as I am aware, it is perhaps the first time that it has presented itself. Nevertheless, I wish cautiously to refrain from offering or suggesting any answer here, seeing that it is not necessary to do so. I think that the facts stated, the various steps taken by the petitioner, the difficulties and frustrations she met, the performance and H admitted competence of the Board in fact Boards - bring the case within the ambit of para. (f) of the proviso to s. 101 of the Law of Marriage Act, 1971 (hereinafter referred to as "the Marriage Act"). Under that paragraph the court may dispense with reference to the Board where it is satisfied that there are extraordinary circumstances which make I reference impracticable.

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LUGAKINGIRA J

The case of Khan v Khan 1973 LRT no. 57 is authority for the view that prior leave of A the court is not mandatory before the court can exercise its discretion under para. (f). In this case the Board was duly invited to deal with the matrimonial difficulty. Twice the Board met and twice it found itself without muscle, both as regards the presumed stature of the respondent and the complexity of the difficulty, to attempt any reconciliation. It B then remitted the difficulty to the court per Exh. P6. I do not believe that it is in a better position today. It would thus be a futile exercise to require the petitioner to return to the same Board. In that sense I regard reference as being impracticable. In the case cited above, Onyiuke, J. held that the term "impracticable" in para. (f) is not to be limited to C physical impracticability. He then went to say:

> The discretion conferred on the court by paragraph (f) of Section 101 should ... only be sparingly exercised and then only in circumstances where it is clear beyond any reasonable D

doubt that a reference to the board is not a practical proposition. This may be due to the fact that the circumstances of the case are such that no expectation can be entertained that the Board will be able to achieve any useful results and that any reference to it will be so much waste of time and effort. It is impossible to predicate all the circumstances which will make a E reference to the Board impracticable. Were it not so, the legislature would have given an exhaustive list of exceptions.

With respect, I agree. I only desire to observe that the learned judge seems to have put F the standard too high by proposing that the court, before exercising its discretion, should be satisfied beyond any reasonable doubt that a reference to the Board is not a practical proposition. I see no justification, and certainly it cannot be found in s. 101, for the departure from a balance of probabilities. Now, as I have demonstrated, further G reference to the Board in this case would be futile, a waste of time and effort. It is in that sense impracticable. I therefore hold that the petition was competent. We can now proceed to consider the charges.

The petitioner alleged adultery. This centers on the respondent's acquisition of and H cohabitation with the second woman. There was indeed adultery, the parties' being a Christian marriage which is presumed to be monogamous. The respondent did not deny this fact: he only pleaded condonation. I have no hesitation in finding that there was condonation. The petitioner might have initially felt slighted, humiliated and offended when the respondent took on the second woman. But in the end she became reconciled I to it, and tolerated it, taking no step to register her

protest. And for four years, from 1977 to 1981, she voluntarily submitted to the A respondent's embraces thereby registering her forgiveness. She cannot now be heard to complain. I can perhaps sense the cultural dilemma which might have beset the petitioner. In the African society, polygamy is neither a secret nor an outrage. Neither statute nor foreign propaganda has succeeded in engendering a change of attitude. B There are therefore countless "wives" who are in effect concubines. Nevertheless, no woman to a monogamous marriage, even in a polygamous society, should feel constrained to tolerate an adulterous association if it does not commend itself to her conscience. The petitioner is a woman with some education; she evidently knows her C rights. She had a home and she had the means to subsist on her own. That was the more reason for her not to assume a defeatist attitude. I think, therefore, that it was borne of her considered decision to tolerate her husband's adultery. That was condonation. Indeed I was shown pictures in which the petitioner had herself and her D children happily photographed with the second woman's children. She also permitted herself to live with the second woman under the same roof. The presumption, so strong to rebut, is that she had accepted the second woman as a member of the family. However, it is one thing to tolerate a spouse's misconduct, it is another to put up with the E consequences thereof. It must have been in contemplation of this that the legislature enacted in s. 85 of the Marriage Act that evidence of misconduct by a husband or a wife shall not be inadmissible in any matrimonial

proceeding on the ground that the misconduct was condoned by the aggrieved spouse. I will therefore have occasion to refer again to the adultery at a later stage in the judgment. F

Both parties alleged cruelty. Cruelty is conduct having the effect of producing actual or apprehended injury to physical or mental health: Russell v Russell [1897] A.C. 395 (HL). The petitioner in the instant case alleged both physical and mental cruelty. The G respondent alleged the latter. At this juncture I will consider the petitioner's allegation. It was seriously impressed upon me that the respondent was in the habit of assaulting the petitioner and the petitioner's children, and even of threatening the life of the former. She reported her plight to a number of persons. Unfortunately, she did not call one to corroborate the claim. The respondent, quite naturally, denied the allegation. After H anxious consideration, I do not think he was serious. Having seen and heard the petitioner, I have no doubt that she was a witness of truth. I believe and find that from time to time the respondent beat up the petitioner, breaking her nose on one occasion, and that he even threatened her life. The respondent showed me a 1981 photograph of I the petitioner and claimed that she looked healthy. I do not know whether the photograph purports

to reflect that view for I do not know whether the petitioner looked worse - and how? - A when unhealthy. In any case, to find cruelty, the court will not wait to see injuries on the petitioner's person nor will it wait to see the petitioner in hospital. In the words of Lord Pearce in Gollins v Gollins [1963] 2 All E.R. 966, at p. 992.

> It is impossible to give a comprehensive definition of cruelty, but when reprehensible conduct B or departure from the normal standards of conjugal kindness causes injury to health or an apprehension of it, it is, I think, cruelty if a reasonable person, after taking due account of the temperament and all the other particular circumstances, would consider that the conduct C complained of is such that this spouse should not be called on to tolerate

I adopt that view. It is also said in Bromley's Family Law(3rd Edn.), at p. 95, and I again agree, that D

> ... there is no need for the injury to be actually suffered: a reasonable apprehension that injury will result if the conduct is persisted in will suffice, for the court will not wait for the petitioner to be actually injured before affording him relief. E

I have already said that the petitioner impressed me as a witness of truth. In fact no reason was suggested for her to concoct a lie. I believe that she was a victim of cruelty. Further, no reason was suggested why, after 23 years of married life, this woman should F suddenly abandon the comfort of her bed and spend the night elsewhere - in the "hedge" as alleged by her. No reason was suggested why three children, one of them then aged seventeen, should flee the security of their father's house to spend two days at the place or places unknown. I believe the petitioner that on the night of 24 July, 1982 G the respondent enquired for bullets in a manner and circumstances that gave rise to reasonable apprehension of injury.

I would go further on this issue. Since August, 1981, the petitioner, a teacher by profession, has remained unemployed. I was made to understand that a married woman H cannot be posted at

a place other than her husband's station. There is in fact a letter (Exh. P2) from the Regional Development Director telling the petitioner that "Uhamisho wa aina yoyote unaohusu mke wa mtu ni budi kibali cha mumewe mhusika kipatikane kwanza". The petitioner stated, and I believe her, that twice she wrote to the respondent to consent to her transfer but there was no reply. As a result, the petitioner was reduced I to a "Yallah maskini", as she put it. As
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LUGAKINGIRA J
pointed out before, the respondent was happy at the petitioner's departure and had A made no effort to induce her back. This attitude, then, can hardly be described as apt or sympathetic. To reduce a spouse to a virtual beggar is certainly an act of cruelty.
Finally, the petitioner alleged desertion. Her case was that her departure was B necessitated by the respondent's misconduct. She was therefore charging him with what is called constructive desertion. The respondent, on the other hand, accused the petitioner of being the deserter. It is settled that where one spouse behaves in such a manner that the other is virtually compelled to leave, the former may in law be the C deserter. It is imperative for there to be conduct which amounts to dismissal from the consortium. It was therefore said by Lord Greene, M.R. In Buchler v Buchler [1947] 1 All E.R. 319, at p. 320, that:

Incompatibility of temperament and unhappiness in the matrimonial relationship which is not D caused by cruelty are not themselves grounds for divorce, nor by themselves do they entitle the spouse affected to leave the matrimonial home and then to claim that the other spouse, even if he or she is alone to blame for the ill-success of the marriage, has been guilty of the grave matrimonial offence of desertion. E

Again at p. 325:

... constructive desertion requires both factum and animus, and an indication by the husband F to the wife that she may leave him if she likes (animus) is not enough unless the conduct is such as to amount to an expulsion (factum) ... Mere wish to expel, even if it exists, without acts equivalent to expulsion is, in my opinion, insufficient to constitute constructive desertion. G

In the above case the House of Lords denied the wife a decree of divorce on the ground of constructive desertion although the husband's conduct had no doubt caused the wife intense unhappiness and was such that no decent man would have been guilty of it. The H husband had cultivated "a very close and remarkable association" with a man in his service to the extent of losing interest in the wife's company and conversation. It was held that that conduct did not justify the wife in treating it as dismissal from the consortium and in leaving the matrimonial home. The wife was held the deserter and the husband was granted the decree. I
I think that our case stands on different ground. The petitioner's
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departure from the matrimonial home was not prompted merely by incompatibility of A temperament and unhappiness in the marital relationship. I have already found, and I need not repeat the facts, that she was the victim of persistent physical and mental cruelty. The conduct

of the respondent, in my view, amounted to dismissal of the petitioner from the consortium. On the other hand, his persistent invitation to the B petitioner to leave, his apparent pleasure at her departure, and his failure to induce her to return, are evidence of an intention to bring cohabitation to an end. There was therefore the factum as well as the animus. I am satisfied that the respondent was in constructive desertion and I reject his counter-charge. I am aware, though, that under C our law desertion is not a ground for divorce unless it has persisted for at least three years prior to the presentation of the petition. In this case only one year had elapsed. Nevertheless, I believe that it was not irrelevant to make finding on this issue. Since the enactment of the Marriage Act our law has radically departed from the English Law which insists on proof of a matrimonial offence before divorce can be granted. English D decisions have therefore to be read with analytical care. In this country, proof of what is called a matrimonial offence (adultery, cruelty, desertion, etc.) would not by itself entitle a spouse to a decree of divorce, a fortiori failure to prove such offence would not by itself disentitle a spouse to the decree. What is relevant is whether the marriage has E broken down and in considering this aspect the court is enjoined to have regard, not merely to specific offences, if any but to all relevant evidence regarding the conduct and circumstances of the parties. While, therefore, desertion which has not persisted for three years may not be a ground for divorce, that only operates to exclude it as an F actionable ground per se; it does not operate as a bar to considering the circumstances of the parties as a result of it. I will therefore be entitled to reflect on these circumstances, if it shall be necessary to do so.

There are then the issues presented in the cross-petition. They were two: desertion and G cruelty. I have just disposed of desertion in favour of the petitioner. As regards cruelty, the respondent's charges were two-fold: that the petitioner spoiled the children and rendered them unamendable to his authority and that the petitioner was in the habit of consulting witchdoctors. He alleged that these phenomena occasioned him great physical and mental strain as well as a reasonable apprehension of injury. I can dispose H of the first allegation briefly. It revolves on the pregnancies of the second and fourth children; it also revolves on the third child's criminal propensities. I agree that that was a sad development and I am naturally sympathetic. However, the duty to bring up children in a decent manner is the duty of both parents. It must be in a rare and special I circumstances that this obligation may fall on the shoulder of one

parent. No evidence of such rare and special circumstances was brought to my A attention. There was on the other hand, no evidence of particular dereliction on the petitioner's part which could be said to have contributed to the children's delinquency. I was told that the petitioner used to withhold from the respondent's knowledge acts of B hooliganism by the children. I was also told that the respondent's attempts to discipline them would meet with frustration as the petitioner would stand up in defence of the children. I think, with respect, that these complaints are in fact evidence that the respondent knew of his children's ways. They also testify to the motherly instinct which is natural to women the world over. It is perhaps

fitting to add that this instinct is an C essential one to temper the rough edges of men. And in litigation, as in science, these revelations cannot be the basis of a judgment. The development of a person's character is by no means a simple phenomenon. Many factors, both within and without our perception, go to mould a particular personality. Psychologists tell us that accumulated D home experiences, inherited potential and environmental experience, all combine to make a person what he is. It is therefore unsafe and unscientific, on the evidence such as I have, to attempt any judgment. I decline to find that the petitioner bears responsibility for the children's delinquency. It remains to consider the issue of witchcraft. E

It was testified by the respondent that ever since they were at Musoma the petitioner used to consult witches. She continued to do so even at Singida, his protests notwithstanding. He then said that when the petitioner departed in July, 1981 he went into her room and found objects tied in the petitioner's handkerchief which he believed to F be instruments of witchcraft. He tendered these as Exh. D.11. It is an astonishing collection. I will endeavour to describe these objects. They consist of: (a) five cowry shells, some wrapped in medical plaster and one in pieces of paper that bear messages in the Arabic script; (b) two powdery preparations, one brown and the other grey, from G unknown matter; (c) a piece of integument which by its scaly nature could be that of a snake or similar creature; and (d), more repugnant than all, is a thing, dried up and dark, which defies all description and to which is tied a root or twig. I have no doubt that these are instruments of witchcraft - what else can they be? The petitioner denied seeking assistance in witchcraft, and denied any knowledge of Exh. D11. She suggested H that these articles were acquired by the respondent and his second woman in order to slander her.

I have given long and anxious consideration to the petitioner's denial as well as her suggestion but, on a balance of probabilities, I am inclined to accept the respondent's I charge. And these are my reasons: First, I was not impressed with the petitioner's demeanour when the ownership

of Exh. D11 was put to her. She suddenly changed, and looked troubled, her voice A sinking low. Secondly, she conceded that the respondent had protested to her about witchcraft ever since 1978. Thirdly, on one occasion the respondent found their fifth child with an amulet around his waist. He believed it was the petitioner's work and told her so. I, too, cannot imagine a stranger being so "generous" to the child. I think the B respondent's belief was justified. Fourthly, there is nothing to suggest that the discovery of these things had any connection with this litigation. The respondent informed the court that on discovering the articles he went to report to his father and the petitioner's father, but did not find the latter. I discovered from Exh. P3, the petitioner's 13 page C memorandum to the President's Office, that this was on 13 August, 1981, eighteen days after her departure. The petition, as earlier stated, was filed on 19 August, 1982. Finally, I see no reason in the world for the respondent to expend energy, and perhaps money, to acquire these abominable things. I am unable to accept the suggestion of slander. I think the respondent had no cause to slander the petitioner after she had D departed and given him the happiness he longed for. He also could not risk slandering her

when they have seven children, some of whom he apparently loves. I am for these reasons persuaded to the view, and find, that the instruments of witchcraft belonged to the petitioner. E The respondent said, and I quote, "Discovering these `medicines', I was greatly disturbed and thrown into a state of worry. I am still worried and apprehensive. Seeing these things, I cannot again take her for my wife. She might kill me. I can't risk again". Of course there was no evidence that the "medicines" were intended for the respondent. F They might have been the petitioner's own "medicines" for that matter. There was also what one might call acquiescence. The respondent, aware of the petitioner's addiction to witchcraft since their Musoma days, seems to have done no more than remonstrate. Prima facie, therefore, one might be inclined to doubt whether the respondent felt the G cruelty. I am not so inclined. I think the foregoing is only one side of the coin. It might well be that the petitioner's witchcraft activities were not intended for the respondent. Yet, in a society riddled with superstition, and ours lays no claim to exception, neither witches nor their clients would make comfortable bedfellows. In considering this, one H cannot deny that the petitioner's mind on the question of acquiescence, it would be dangerous to generalise. If a spouse continues to cohabit with the other although the latter has been guilty of cruelty, it is a question of fact whether to infer forgiveness. Each case would depend on its peculiar nature, not least the nature of the cruelty. I believe I that witchcraft, such a cause of strife and misery among a greater part of our population, is not something one can

elect to ignore. One can only hope and pray that it has ceased. The sudden discovery A that it has not, in particular, the sudden discovery of grotesque objects like Exh. D11 herein, would in a superstitious mind give rise to an intensified and reasonable apprehension of injury. On this score I accept the respondent's charge of cruelty. B

We are now in a position to conclude this part of the proceeding. On the petitioner's side I have found established cruelty, adultery and desertion, the latter two not being actionable per se. On the respondent's side, I have found cruelty established. Regarding the implications of the respondent's cruelty, I would respectfully adopt the words of Katiti, Ag. J. (as he then was) in Marwa v Akeyo [1977] LRT n. 39 where he said: C

> I would without demur say that in the face of these circumstances (i.e. a lot of beatings, assaults and chases from the matrimonial home) accompanied by (the wife's) loud fears of death ... it is difficulty to avoid a conclusion that (the marriage has irreparably foundered. D

On the other hand, the adultery was condoned, it is true, but it remains inescapable that the marriage in the instant case foundered mainly due to the presence of the second E woman. She remains with the respondent todate. She was the principal, though not the initial, cause of the respondent's alienation from the petitioner and she was the principal cause of his truculent disposition towards the petitioner. As Lord Greene, M.R. again said in Buchler v Buchler (above), at p. 323, "For a woman to feel that her husband has lost interest in her company and conversation is a misfortune which calls for sympathy F and pity". I have more than sympathy and pity for the petitioner. More seriously, I think, the continued presence of the second

woman renders resumption of cohabitation an impractical proposition. The same goes for the desertion. That too is on the facts of this case not actionable. But the conduct and circumstances of the parties subsequent G thereto are relevant factors. When I saw the parties I was left in no doubt about their determination to remain estranged. The fears of, mistrust and even loathing for each other have progressively grown intense. In all consideration, I find that this marriage has suffered a mortal blow. It is evident, however, that the petitioner's case is the weightier H of the two. I will therefore allow the petition, after rejecting the cross-petition, and grant a decree of divorce to the wife. The marriage is accordingly dissolved.

The petitioner also prayed for custody of the youngest five children; the respondent prayed for custody of the last three. Custody may only be ordered in respect of a child I who has not attained the age of 18 years. In this case, the third child was born in 1962 and the fourth in 1964.

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These have already attained 18 years and do not come in for consideration. The fifth, A sixth and seventh were born in 1967, 1968 and 1970 respectively. They are therefore still "infants" within the meaning of the law. However, they are not the sort of infants whose views one can safely ignore. The fifth child completed Standard VII last year, the sixth is in Standard VII this year and the seventh in Standard VI. In matters of custody B the welfare of the infant is of paramount consideration, but where the infant is of an age to express an independent opinion, the court is obliged to have regard to his or her wishes. The last three children have already attained an age and a level of education at which they can express independent opinions. There is another matter which is equally relevant. It is the circumstances in which the three children joined the petitioner and the C circumstances in which they continue to stay with her. The respondent alleged that the petitioner enticed them away. The petitioner denied this and claimed that they fled from respondent's terror. It was indeed admitted by the petitioner that she used to meet the children after her departure. The possibility of her putting in a word cannot be entirely D ruled out. It is significant, however, that late last year the fifth child went to Singida to enquire for his examination results and, after paying a courtesy call on the respondent, he returned to the petitioner at Itigi. He remains with the petitioner. This incident suggests strongly that the children are not being unduly influenced to be where they are. There is E an element of choice. For these reasons I consider their views very relevant. Unfortunately, I was not privileged to see and hear these children. I therefore do not know what their wishes are. It would therefore be improper on my part to order custody one way or the other and I desist from doing so. F

Finally, there was the issue of matrimonial assets. The petitioner claimed that they acquired with the respondent two radio cassettes, one radiogram, one refrigerator, built a house at Chamwino and cultivated a maize shamba. Although she did not say so, I believe that she desired the Court to divide up these or their value proportionately. Turning to her contribution the petitioner claimed that from 1961 to July, 1978 she used G to remit the whole of her salary to the respondent. She also claimed to have put some work in the house and the shamba.

According to the respondent, however, there is only one radio cassette and a music system. The radio gram and the fridge were damaged long ago. For nearly all these he produced documents evidencing their acquisition - H some on hire purchase agreements. For the Chamwino house he obtained a loan from the Tanzania Housing Bank. I was shown the agreement and the statement of account therefor. The loan is being repaid by deductions from his salary. Regarding the maize shamba the respondent stated, and the petitioner agreed, that a tractor and labourers I were hired at all stages for

which he paid the expenses. He denied participation by the petitioner and said she only A visited the shamba to break maize cobs for her consumption. I will also observe that no evidence was adduced as to the number of times the shamba was cultivated, the quantity of maize realised or the amount of money it fetched. The petitioner merely said that the respondent knew. The respondent also denied receiving the petitioner's salary at B any time. From 1962 to 1963 he was at the Dar es Salaam Technical College taking course. The petitioner conceded that she remitted to him no salary then. Between 1964 and 1978 the parties found themselves at Dar es Salaam, Mbeya, Tukuyu, Chunya, C Mwanza, Musoma and Singida. The petitioner admitted that in the course of those years and transfers she opened her own bank accounts not less than four times. She claimed that she was banking moneys realised from handcrafts but that does not commend itself to my acceptance. On a balance of probabilities, I find the allegation of work and salary D remittance not established. In the end I find no evidence of joint acquisition of the assets aforementioned.

There is a school of thought, and I think a judgment of this court, which advances the idea that in considering the issue of joint acquisition or ownership of property, regard should be had to the fact that the wife is the housekeeper and that this releases the E husband to engage in production. The proposition might be attractive but I cannot and do not believe that that is the law. In accordance with s. 114(2)(b) of the Marriage Act, the Court is required in exercising its power of division of assets to have regard "to the extent of the contributions made by each party in money, property or work towards the F acquiring of the assets", I would require considerable persuasion to come to the view that "work" refers to or includes the fulfilment of what are purely conjugal obligations. Housekeeping is a conjugal obligation. I think, with respect, that "work" refers to physical participation in the production of the asset itself. As stated already, I was not G satisfied that the petitioner contributed any work worth mentioning. It may be possible, however, for spouses to enter into an agreement for the joint ownership of property otherwise separately acquired. Section 58 of the Marriage Act is relevant in this regard. But in the absence of such an agreement the fact of the marriage would not operate to H change the ownership of any property to which either the husband or the wife may be entitled. The petitioner did not seek to rely on any agreement or even a custom of some sort. There otherwise appears to be no basis in the statute for the housekeeping idea.

The rule is a verbis legis non est recedendum, i.e. thou shall not vary the words of a I statute. I am unable to find, on the state of the law

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today, that the petitioner is entitled to sharein the assets named by her. I accordingly A reject her prayer.
The petitioner expressly declined any costs and, in the circumstances of this case, I would not have granted any.
B Order accordingly.
1983 TLR p309
C
[zRPz]RAMADHANI SAID v MOHAMED KILU 1983 TLR 309 (CA)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

July 29, 1983
CIVIL APPEAL 38 OF 1982 D
Flynote
Family Law - Marriage - Meaning of - Marriage - Failure to give notice of intended marriage - Whether it affects validity of marriage - S. 41 of Law of Marriage Act, 1971.
Family Law - Marriage - Validity of subsequent marriage by a woman when an earlier one still subsists - Polyandry not permitted - Section. 15(3) of the Law of Marriage Act, 1971. E
-Headnote
The Appellant who was the original defendant in the lower court appealed against the decision of the District Court which found him guilty of adultery with his own wife who had married the respondent while her marriage with the appellant had not been legally F dissolved. The basic question before the High Court was on the validity of the two unions.
Held: (i) Failure to give notice of the intended marriage, absence of "shangwe za harusi" G or any procedural irregularity in the ceremony are not matters which would affect the validity of such a marriage if in all other respects it complies with the express requirements of the Act;
(ii) no woman who is still married, while that marriage subsists can contract another marriage; (see s. 15(3) and s. 152(1) of the Law of Marriage Act, 1971); it is an offence for a married woman to be a party to a ceremony of marriage whereby she H purports to marry another man.
Case Information
Appeal allowed.
No case referred to. I
1983 TLR p310
LUGAKINGIRA J
[zJDz]Judgment
Lugakingira, J.: In December 1978 the appellant contracted a customary marriage A with one Mwanaidi Mwiru and cohabited with her at her parent's home on payment of two head of cattle.

In May 1980 he left on a business safari to a place called Endasak. In his absence, his in-laws were overwhelmed by greed. On 9.7.80 they wedded B Mwanaidi to the respondent according to Islamic rites and received three head of cattle. But this latter union did not endure. In or about October 1980 Mwanaidi returned to her parents and there are indications that the respondent was refunded his cattle.

In November 1980 the appellant returned home and learnt of what had been happening C to Mwanaidi. He did not wish to litigate; instead, he proceeded to Mwanaidi's home, collected her and took her to his own home. In April 1982 the respondent sued the appellant in adultery claiming seven head of cattle. The Primary Court dismissed the suit. It held that there were two valid marriages but that the appellant's marriage being earlier, D took precedence. The respondent appealed to the District Court and this court has a different view. It observed that Mwanaidi's marriage to the appellant had not been accompanied with "shangwe za harusi" whereas her marriage to the respondent was announced for 21 days and became public knowledge. In the view of that court it is the E second marriage which was thus valid. It therefore found adultery established and allowed the respondent's appeal. The appellant appealed here. The basic question before this court is, hence, which of the two unions was a valid marriage.

It all goes back to the definition of a marriage. According to s. 9(1) of the Law of Marriage Act, 1971 (hereinafter called the Act) a marriage means the voluntary union of F a man and a woman intended to last for their joint lives. In this country, where the parties belong to a community or to communities which follow customary law, a valid marriage may be contracted according to the rites of customary law. Failure to give notice of the intended marriage, absence of "shangwe za harusi" or any procedural G irregularity in the ceremony are not matters which would affect the validity of such a marriage if in all other respects it complies with the express requirements of the Act. In this case, the appellant and Mwanaidi voluntarily contracted a marriage in customary form. That was testified to not only by the appellant and corroborated by two other H witnesses, one of whom was the "mshenga", it was also confirmed by Mwanaidi who was called by the trial court. She then added that her subsequent union with the respondent was forced on her by her parents. On this evidence, I am of the view that the appellant's marriage was valid notwithstanding absence of notice or "shangwe za harusi".

On the other hand, our law does not permit polyandry but punishes it. Section 15(3) of I the Act provides that no woman who is married

shall, while that marriage subsists, contract another marriage and under s. 152 (1) A thereof it is an offence for a married woman to be a party to a ceremony of marriage whereby she purports to marry another man. In other words, in reference to the instant case, as long as Mwanaidi was still validly married to the appellant she could not contract a valid marriage with the respondent. Neither the notice nor the "shangwe", not B even the certificate issued, could render valid that union with the respondent. Besides, Mwanaidi was forced into it. There was therefore no marriage with the respondent but he had risked being sued in adultery.

This is sufficient to show that the Primary Court had reached the correct decision although it did not direct itself correctly on the status of the two unions. I consider it C unnecessary to go into the other features of the case. The appeal is allowed with costs.

D Appeal allowed.

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E

[zRPz]CHIGOLI GOMAHINGO v WILSON MCHANE 1983 TLR 311 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

May 27, 1983
CIVIL APPEAL 47 OF 1982
Flynote
Civil Practice and Procedure - Bride price - Claim for refund - Pleading and procedure - F Rules of the Civil Procedure Code.
Family Law - Bride price - Refund of - Whether equitable where the claimant is a wrong doer.
-Headnote
The appellant was appealing against the decision of the District Court of Dodoma which G enhanced the refundable bride price to 10 cattle and 9 goats while the Primary Court of Mvumi had ordered a refund of 7 cattle and 5 goats. It was on evidence that the Respondent's own wrong-doing led to the breakdown of marriage which he petitioned to dissolve in a proceeding which also joined the father-in-law (present appellant) for H purposes of seeking refund of pride price.
Held: (i) A petition for divorce is a matrimonial proceeding but a claim for refund is not; in the case of the former the jurisdiction, pleading and procedure are governed by the I provisions of Part VI of the Law of Marriage Act, 1971 while the latter is a normal suit in

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LUGAKINGIRA J

which the jurisdiction, pleading and procedure are governed by the relevant rules relating A to civil suits;

(ii) where a party claiming refund of bride price is the sole cause of the break-down of marriage he cannot be entitled to recover even a portion of the bride price for it is inequitable that he should gain from his own wrong doing. B
Case Information
Appeal allowed.
No case referred to. C
[zJDz]Judgment
Lugakingira, J.: The respondent was married to the appellant's daughter in 1974. For reasons we shall see later he drove his wife away in or about 1978. Then in 1979 he petitioned for divorce

in the Primary Court at Mvumi and included in the petition a D prayer for the refund of bride price amounting to 17 head of cattle and 12 goats. He joined his father-in-law (the appellant) in that action. The trial court granted the divorce and having found that the respondent was the guilty party, it ordered the refund of seven head of cattle and five goats only. That was on 27/2/80. E

On the same day, the record shows more rather interesting entries. The appellant is on record telling the court: Nitamlipa mdai ng'ombe wake 7 na mbuzi 5 hapo 1/3/80 ingawaje binti yangu hakuwa na kosa lolote lakini huo ni uamuzi wa mahakama naridhika". It seems they touched him because shortly before the court had vested F custody of the respondent's infant child in its mother and the respondent had been ordered to furnish its maintenance. He therefore replied "Sitaki kabisa hao ng'ombe 7 mbuzi 5 wake. Mdaiwa No. 2 ale tu mie nasamehe". But seven days later he changed his mind and appealed to the District Court contending that the refund ordered G had been too small! According to him, too, the wife was the guilty party. The learned resident magistrate who heard the appeal agreed with the respondent in every respect and increased the refundable bride price to 10 head of cattle and 9 goats. That prompted the present appeal.

I desire first to say a word on the question of procedure. As pointed out above the H respondent joined in one action a prayer for divorce and a claim for refund of bride price. He was also careful to join his father-in-law in the suit. Perhaps that was a clever way of going about the matter but it occurs to me that it was improper. A petition for divorce is a matrimonial proceeding but a claim for refund of bride price is not. In the I case of the former the jurisdiction, pleading and procedure are governed by the provisions of part VI of the Law of Marriage Act, 1971

while the latter is a normal suit in which the jurisdiction, pleading and procedure are A governed by the relevant rules relating to civil suits. I am aware that in Primary Courts even matrimonial proceedings may be instituted, tried and disposed of in the same manner as any civil proceeding instituted in such court and the provisions of the civil procedure rules made under Cap. 537 would apply. That I think is the import of B Section 93 of the Marriage Act, but the provision goes on to state such rules apply mutatis mutandis, that is with the necessary changes having regard to the special requirements of a matrimonial proceeding. It is thus necessary to refer a matrimonial difficulty to a Reconciliation Board before petitioning in court but it is not necessary to do so for the claim of bride price. The evidence necessary to establish a case for C divorce would also not necessarily establish a claim for bride price. There is therefore need to keep the two issues apart, and to dispose of divorce separately and first, as previously and constantly directed by this court. That said, however, I am satisfied that the irregularity occasioned no failure of justice in this case for there was no dispute as to D the amount of bride price paid and there was in fact evidence upon which the trial court could consider and determine the issue of refund.

Coming to the appeal, the appellant contends that the appellate magistrate erred in E enhancing the refund as he did so without considering that the marriage subsisted for six years and was blessed with two issues (one of which died). That however is not correct. The appellate magistrate did consider the two factors and even held the duration of the marriage to have been "very short". Nevertheless, he did misdirect himself in another and very important aspect. He stated that "it is not disputed that the F respondent's (in this appeal the appellant's) daughter was actually the cause of the breakdown of the marriage" and this, unfortunately, is the complete opposite of what is on record. According to the evidence, the respondent's case was that his wife was in the habit of insulting him; that she had eaten two eggs; and that a chicken had G disappeared and she had possibly eaten that too. Well, I should probably say that it is all amusing. But apart from that I think these allegations or any of them, even if proven, would not move a court of law to interfere in the sanctity of a marriage. Divorce is a serious matter; its consequences go beyond the subjective convenience of the immediate parties. It is therefore a hallowed rule that neither incompatibility of temperament nor H the trifles of human aberration would justify its being decreed. It is comforting that in this case the trial court did not in fact grant divorce on the respondent's allegations - which in any case he did not prove. It did so on account of his own intolerable guilt which was demonstrated in the following admissions: He admitted that the wife had ceased insulting I him prior to the filing of the petition; he

admitted that he had boycotted her food, preferring that of his other wife; he admitted A that he had chased her from the shamba in an endeavour to prevent her form getting any food; he finally admitted that he had driven her from the matrimonial home as he did not wish to risk any trouble in future. He was only anxious to be refunded his animals. When then, the appellate magistrate stated that the wife was the guilty party, he could B only have had a different record in mind.

I agree with the trial court that the respondent was the guilty party and the sole cause of the breakdown of the marriage. I think that in those circumstances he was not entitled to C recover even a portion of the bride price. It is inequitable that a party should gain from his own wrong. The respondent must have appreciated this too as demonstrated by his earlier decision to forego the refund.

As we have also seen, the appellant agreed to make the refund in protest for he thought D he could not challenge the decision of the trial court. The justice of this case thus demands that the appellant be relieved of all liability.

The appeal is accordingly allowed with costs. The lower courts' orders for refund are set aside.

E Appeal allowed.

F

[zRPz]ABDALLA HAMID MOHAMED v JASNENA ZALUDOVA 1983 TLR 314 (HC)

Court High Court of Tanzania - Zanzibar

Judge Msumi J

September 8, 1982
MATRIMONIAL CAUSE 12 OF 1982
Flynote
Family Law - Domicile of parties to marriage - Private International Law - Section 15(c) of G Civil Procedure Decree, Cap. 8 - Parties subject to jurisdiction of the court of the country of their domicile.
Family Law - Conversion to Islam - Second marriage ceremony under Islamic Law - Whether parties subject to Islamic law in matrimonial proceedings. H
-Headnote
The petitioner is a citizen of Tanzania while the respondent is a citizen of Czechoslovakia. They had contracted a civil marriage in Prague, Czechoslovakia in 1974. The parties subsequently came to live in Zanzibar and while there they underwent I a second marriage ceremony which was preceded by the conversion of the Czech woman to Islam. The petitioner then married a second woman under Islamic Law. The
1983 TLR p315
MSUMI J
respondent ran away to Czechoslovakia and intimated that she would never resume A cohabitation with the petitioner unless he divorced his second wife. The petitioner contends that the respondent has been guilty of desertion since 1979.
Held: (i) Parties in a matrimonial suit are subject to the jurisdiction of the court of the B country of their domicile; section 15(c) of the Civil Procedure Decree, Cap. 8 gives jurisdiction in civil matters to a court in whose territory the cause of action arose;

(ii) in common law a second marriage ceremony after the parties have validly married is of no legal importance; C

(iii) conversion to Islam followed by a second marriage ceremony in Islamic law has the effect of formalising the religious and marital status of the parties. The husband then is allowed to marry up to four wives provided that he can maintain them sufficiently and impartially;

(iv) by leaving her husband and refusing to return after being asked to do so, D according to Islamic law, the respondent is labelled as an insolent or disobedient wife, which disobedience is good ground for divorce.
Case Information
Order accordingly.
Case referred to: E

1. Dedhor v Janmohamed [1946] 8 ZLR 52
2. Thynne v Thynne [1955] 3 All ER 129
3. Skinner v Skinner [1897] 25 IA 34
4. Rattansey v Rattansey [1960] E.A. 81 F
5. Khambatta v Khambatta (1935) 59 Bomb. 278

6. Ayoob v Ayoob [1968] E.A. 72

[zJDz]Judgment

Msumi, J.: The petitioner is a citizen of Tanzania while the respondent is a citizen of G Czechoslovakia. On 19th September 1974 they contracted a civil marriage at Prague, Czechoslovakia. Few months after the marriage they came to Tanzania and lived in Dar es Salaam and shortly afterwards they shifted to Zanzibar. While in Dar es Salaam the respondent changed her Christian religion and became a moslem. Her conversion into H Islam was solemnised by a BAKWATA Sheikh one Abdallah Chaurembo; and consequent to it the respondent assumed a new name of Salama. Soon after the respondent's conversion into Islam, the parties went through a second marriage ceremony in accordance with Islamic Law.

While the parties were still living together here, the petitioner decided to get married to I another wife. On hearing this, respondent decided to

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leave for her home country where she is still living. In some of her letters to the A petitioner the respondent has informed him that she was not going to resume cohabitation wit him unless he divorces his second wife and then join her in Czechoslovakia. Hence in his petition, the petitioner contends that the respondent has been guilty of desertion since 1979 and thus requests the court to grant him a decree of divorce. B

On 24/4/82 this court made a short ruling upholding the petition. Detailed judgment was reserved to a later date. Thus in this judgment I will endeavour to illuminate the reasons for upholding this petition.

The suit proceeded ex parte after efforts to serve the respondent in Czechoslovakia has C proved to be fruitless. In any case, there is ample evidence showing that in fact the respondent was not interested in defending this suit. However, I am satisfied that this suit was not filed in collusion. Despite the fact that the respondent made no defence, still this court is bound to consider the petitioner's case in detail and decide whether it is supportable by law and the available evidence. D

It is evident that the respondent is a citizen of Czechoslovakia and that the parties first acquired their marital status through a civil marriage performed at Prague,Czechoslovakia. It is also undisputable that at the time when this suit was filed in this court the respondent had already left the country for about three years. In these E circumstances, the immediate legal question is whether this court has jurisdiction to entertain this suit. Put it in another form, the issue here is whether the respondent falls within the jurisdiction of this court.

It is an internationally-recognised principle of law that a woman acquires the domicile of F her husband on marriage. In this case, the petitioner is domiciled in Zanzibar, it therefore follows that the respondent is also domiciled here. Generally, parties in a matrimonial suit are subject to the jurisdiction of the court of the country of their domicile. On this basis, therefore, it was proper for this suit to be filed here. Furthermore, I am of the opinion that the fact that the matrimonial home of these parties G is still in Zanzibar adds more weight to the propriety of this court assuming jurisdiction over this suit.

Apart from the above mentioned general principles of Private International Law there is a local statute which deals with the question of jurisdiction in civil suits which have H foreign elements like the present one. Section 15(c) of the Civil Procedure Decree Cap. 8 give jurisdiction in civil matters to court in whose territory the cause of action arose. In the case of Dedhor v Janmohamed (1946) 8 ZLR 52 the parties were husband and wife married in Zanzibar under Islamic Law. Soon after their marriage they went to live I in Tanganyika which was the domicile of the husband. Later on the wife left the husband in Tanganyika and came

to live in Zanzibar. She then filed a suit in this court for maintenance alleging that due to A her husband's acts of cruelty, she was forced to leave the matrimonial home. This court, while being presided over by my learned brother Chief Justice Robinson held that since the cause of action viz the alleged acts of cruelty by the husband, occurred in Tanganyika, according to S. 15(c) of Civil Procedure Decree this court lacked B jurisdiction to entertain the suit. In the present case the petitioner's prayer for divorce is based on the allegation that the respondent has deserted him. The alleged desertion consists of the respondent's act of leaving the matrimonial home in Zanzibar and her refusal to return. This means that the cause of action arose in Zanzibar. By virtue of C section 15(c) of Civil Procedure Decree as rightly interpreted in the case of Dedhor v Janmohamed this court has jurisdiction to entertain the suit.

The legal effect of a contract of marriage is to bestow upon the parties the status of husband and wife. It is noted that in this case after the parties had contracted a civil D marriage they later on purported to contract another marriage in accordance with Islamic ceremony and rites. From the petitioner's testimony it is evident that the aim of that second ceremony was to convert their civil marriage into Islamic one. The question then is whether this intention is legally sustainable.

In common law the general view is that a second marriage ceremony after the parties E have validly married is of no legal importance. The main argument advanced in favour of this view is that since the parties have already acquired the marital status, which is the purpose of a marriage contract, any subsequent ceremony purporting to do what has already been accomplished is legally redundant. In the case of Thynne v Thynne F [1955] 3 All ER 129 the parties after secretly but validly being married subsequently went through another marriage ceremony. After long cohabitation the wife petitioned for divorce and in her petition she referred to the second marriage ceremony. The court granted a decree of divorce on the understanding that it was dissolving the marriage G celebrated on the day shown in the petition. However, when the court discovered the true fact, it amended the divorce decree to indicate that the dissolved marriage was the one contracted before the second ceremony.

But in the present case the parties here did more than just go through another ceremony H of marriage. Before undergoing the second ceremony the wife willingly changed her religion and became a moslem. A religious ceremony was conducted by one Sheikh Abdallah Chaurembo and subsequently she assumed an Islamic maiden name of Salama. It appears that the

ceremonies of conversion and the Islamic marriage rites were done simultaneously. These ceremonies were aimed at formalising the religious and marital I status of the parties.

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MSUMI J

So far it would appear that at common law the question whether a change of religion by A a spouse after marriage has any legal effect to their marriage is still an open issue. Thus in the case of Skinner v Skinner (1897) 25 IA 34 Lord Watson said:

Whether a change of religion made honestly after marriage with the assent of both spouses, B without any intent to commit a fraud upon the law, will have the effect of altering rights incidental to the marriage such as that of divorce, is a question of importance and may be nicety.

However, in East Africa some decisive pronouncements had been made by the courts C on this question. In the case of Rattansey v Rattansey [1960] E.A. 81, the petitioner a member of Khoja Ithna-asheri community married the respondent who was a Christian D by a civil ceremony under the Marriage Ordinance. The respondent soon became a convert to Islam and was admitted to the Ithn-asheri community. On the same day the petitioner and the respondent went through a ceremony of marriage according to Muslim law. Subsequently the petitioner having divorced the respondent by renouncement of E talak according to Islamic law applied to the court for a declaration that the divorce pronounced by talak be recognised by the law. One of the grounds of objection raised against the petition was that when the parties went through the purported marriage under Islamic law, they were already husband and wife; and so the second ceremony did not confer on them any additional marital status. Since their marital status was that acquired F through civil marriage, the same could not be dissolved by Islamic law procedure in a form of issuing a talak. This argument was dismissed and the court was of the view that the respondent's conversion to Islam had the effect of subjecting the parties rights and obligations incidental to their marital status to Islamic law. In his judgment Spry Ag. J as G he then was, quoted with approval the observations of Blackwell, J in the case of Khambatta v Khambatta [1935] - 59 Bomb. 278 at page 296 where his lordship said:

It has been argued for the appellant that the status imposed by operation of law upon persons H who marry in Christian form cannot be altered by the voluntary act of the parties. But, if a change of domicile, which is a voluntary act, may result in a change of status by reason of the application of a different system of law, it is difficult to see why a change of religion, the domicile remaining unchanged, may not also result in a change of status, if the law to be I applied is then different by reason of the difference of religion.

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MSUMI J

In his judgment Spry Ag. J went to the extent of saying that a marriage contracted A according to one system of law could be dissolved according to another system of law:

"There is no principle of law that a marriage must be dissolved under the same system as that under which it was contracted".

It is highly tempting to hold that the learned judge's view as expressed in Rattansey v B Rattansey was in conflict with what he said in the case of Ayoob v Ayoob [1968] E.A. 72. Fortunately the honourable judge himself foresaw this danger. In short he distinguished the two cases mainly on the ground that the decision in Rattansey case was influenced by the existence of local statutes in Tanganyika by then. Zanzibar is de facto C an Islamic state. Over 90 percent of the population profess Islamic religion. This means that the personal matter of the majority of Zanzibaris are governed by rules of Islamic law. Generally it can be said that all Moslems in Zanzibar are subject to Islamic law in matters related to their personal status. This view is supported by section 11 C, (a)(b)(c) of Decree 6 of 1975 which says: D

11C. The jurisdiction of Kadhi's court shall be limited to:

a. matters relating to personal status, marriage, divorce, guardianship and subject to the E provisions of any other law for the time being in force, the custody of children in cases in which the parties are Muslims of the Ibathi sect or the Shafei sect.

b. matters relating to wakfs, religious or charitable trusts inter vivos and inheritance where the claim in respect of any such matter does not exceed five thousand shillings, F in cases in which the parties are Muslims of the Ibathi sect or the Shafei sect;

c. claims for maintenance, where such claims is for a lump gifts inter vivos and inheritance where the claim in respect of any such matter does not exceed five thousand shillings, in cases in which the parties are Muslims of the Ibathi sect or the Shafei sect; G

The law applicable in Kadhi's courts is Islamic law and once a person is a moslem he automatically falls under the jurisdiction of these courts. Of course, depending on the H circumstances of the case, a case like the present one, which would otherwise be tried by Kadhi's court can be opened in the High Court. However, generally all cases involving personal matters and in which the parties are moslems, are to be tried by Kadhis' courts in accordance with Islamic law.

From the above lengthy discussion, this court is of the view that the marriage of the I petitioner and the respondent though contracted as a civil

marriage is subject to Islamic law. One of the salient features of Islamic Marriage is that A it allows plurality of wives. A moslem husband is allowed to marry up to four wives provided that he can maintain them sufficiently and impartially. Hence when the petitioner married the second wife, he was doing nothing more than exercising his legal B option. It was culpable, to say the least, for the respondent to treat it as a ground for leaving the matrimonial home. By leaving her husband and refusing to return after being asked to do so, according to Islamic law, the respondent is labelled as an insolent or disobedient wife who according to Islamic law is known as "Nashiza". A wife's disobedience is a good ground for divorce. C

All in all, I am satisfied with the petitioner's case. The evidence adduced in support of the suit is weighty. Hence as ordered earlier the marriage between the petitioner and the respondent is hereby dissolved.

D Order accordingly.

E

[zRPz]HASUMATI CHHAGANLAL v BASHIRHUSSEIN GULAMALI & ANOTHER 1983 TLR 320 (HC)

Court High Court of Tanzania - Zanzibar
Judge Ramadhani CJ

August 7, 1980
MISC. CIVIL APPLICATION 1 OF 1980
Flynote
Family - Marriage between Indian citizen and Zanzibari - Applicable law - 'Lex domicili' of F Zanzibar.
Family Law - Age of Majority - Whether it affects capacity to marry on religion/religious rites of party - Section 2 Age of Majority Decree, Cap. 53. G
-Headnote
The Applicant is a citizen of India and the mother of the 2nd Respondent (Padmaben Chhaganlal). Padmaben, aged 14 had fallen in love with a Zanzibar man, and had agreed to convert to Islam and went ahead to contract an Islamic marriage without the knowledge and consent of her parents. The mother petitioned to High Court for the H annulment of the marriage, as well as the annulment of the conversion to Islam. Furthermore, she petitioned the Court to punish her daughter's alleged husband under the Spinsters Protection Decree, No. 5 of 1970.
Held: (i) In a marriage contracted in Zanzibar between an Indian citizen and a Zanzibari, I the applicable law is that of Zanzibar, the 'lex domicili',
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RAMADHANI CJ

(ii) although according to the Age of Majority Decree, Cap. 53 the age of A majority in Zanzibar is 18 years it does not affect capacity to marry or religion or religious rites of the person who has reached the age of discretion;

(iii) in determining the age of discretion a court should consider whether the B young person under consideration had full capacity to understand what he/she was doing, in the present case the girl had such capacity and hence the marriage and conversion to Islam were valid;

(iv) since the girl had legally undergone a conversion from Hinduism to Islam, her Hindu father could not under Islamic law become her walii, a role which was legally exercised by the Kadhi. C
Case Information
Order accordingly.
Cases referred to:

1. Re An Application by Barbara Simpson Howison [1959] E.A. 568. D

2. Agar-Ellis v Lascelles [1883] 24 Ch. D. 317.

3. Mbwana v D.C. Pemba Z.L.R. 20.

4. Soud v Jokha 5 Z.L.R. 16.

5. Salima Alawi v Seyyid Saleh Alawi Civ App. 21 of 1953 HC Zanzibar (unreported).

[zJDz]Judgment

Ramadhani, C.J.: The Petitioner, Mrs. Hasumati Chhaganlal, has moved this court for three things. First, the dissolution of the marriage between her daughter called Padmaben and a young man called Bashirhusein Gulamali which was solemnised by the Hon. Chief Kadhi. Secondly, she and her husband should be given custody of their minor daughter. Lastly, legal action should be undertaken against Bashirhusein Gulamali under Decree No. 5 of 1970. The Petitioner also wanted to know whether the cell leader, one Bibi Mgeni Said, was given custody of their daughter by the court for the night of 1st July, 1980 until the morning of 2nd July, 1980 as she claimed.

The facts of the matter are simple and generally undisputed. The petitioner is a citizen of India holding passport No. K994913. She is the mother of Padmaben. In this judgment I will refer to Padmaben as the daughter. The daughter is also a citizen of India and is included in her mother's passport. The daughter is aged fourteen years and some seven months. She was born on 23rd October, 1965.

The daughter made acquaintance with Bashirhusein whom I shall refer to as the Respondent. They decided to marry. On Friday 27th June, 1980 these two came to the Chief Kadhi seeking marriage. They told

the Chief Kadhi that the daughter, who until then was a Hindu, was willing to convert to Islamic faith. The Chief Kadhi took the necessary steps to convert her, renaming her Fatma and married them immediately.

The couple left the court for home. On their way they met the father of the daughter who took hold of her and went home with her.

On Monday 30th June, 1980 the Respondent returned to the Chief Kadhi to collect the marriage certificates. He complained about what happened and the Chief Kadhi gave the Respondent a letter to the cell leader of the daughter. The letter was summoning the cell leader, Bi Mgeni Said, to come to the court the following day, 1st July, 1980.

The Chief Kadhi gave a letter to the cell leader for the Chairman of CCM branch of Muembe Tanga. This letter had two aims. First, it was to summon the Petitioner and her husband to come to court. Second, it was authorising the cell leader to have custody of the daughter over the night and to come to court with her the following morning. On 2nd July, 1980, the Petitioner came to court. She was informed by the Chief Kadhi that the daughter had converted to Islam and had married the Respondent. The Petitioner and her husband objected. The cell leader who had been given custody of the daughter surrendered her to the court and the daughter accompanied the Respondent to their marital home.

First and foremost I have to look into the legality of this marriage. To do this I have to satisfy myself of the legality of the conversion.

The Petitioner has given three allegations. First, that the daughter is a minor hence cannot decide on herself on these matters. Second, that neither herself nor her husband were informed on this issue. Thirdly, that the daughter is a citizen of India. F

I should deal with the question of citizenship first. I am satisfied that the daughter is a citizen of India and she is included in the passport of her mother, the applicant, bearing No. K994913. The question is what is the applicable law especially on these issues as marriage. This is question of conflict of laws. G

According to Dicey's Conflicts of Law (6th edn) at page 758 a marriage is valid when.

"(1) each of the parties has, according to the law of his or her respective domicile, the capacity to marry the other; and H

(2) any of the following conditions as to the form of celebration is complied with:

(i) if the marriage is celebrated in accordance with the local form" (I have quoted only the parts relevant to the case before me). I

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RAMADHANI CJ

Similar views have been aired by Schitthoff in The English Conflict of Laws, 3rd ed. A at page 316. He has said that according to the principles of English law the validity of a marriage depends on two conditions:

(a) (if) the incidents pertaining to the form of the marriage satisfy the 'lex celebrations' and, further, if B

(b) the incidents pertaining to the essentials of the marriage satisfy the 'lex domicili'.

The expositions of these two learned authorities have been followed with approval in a C case decided here in East Africa by the Supreme Court of Kenya in 1959 in Re An Application by Barbara Simpson Howison [1959] E.A. 568.

I should state from the start that the High Court of Zanzibar is not bound by the decisions of the Supreme Court of Kenya. Nevertheless I have decided to follow this decision on two grounds. First, this is the only case I have been able to find which is D similar to the case I am dealing with. Second, the decisions of the Supreme Court are of high persuasive authority especially as they were taken at a time when we had a similar court structure which incorporated the Court of Appeal of Eastern Africa and ultimately the Privy Council. E

I am satisfied, therefore, that according to the decision of that case and the exposition of the two learned writers I have referred to, the applicable law in this case is that of Zanzibar and not that of India even though the Applicant and the daughter are both citizens of India. I think I do not have to elaborate on the fact that the laws of Zanzibar F include Mohammedan law on these matters of marriage.

At the time of converting to Islam the daughter was fourteen years and seven months old. The question needing my determination is whether she had the capacity to decide on herself the issue of conversion from one religious faith to another. G

The relevant law in Zanzibar is the Age of Majority Decree Cap. 53. The age of majority is eighteen years. Section 2 provides that that age shall not affect:

(a) the capacity of any person to act in the following matters, namely: marriage, dower, H divorce, and adoption;

(b) the religion or religious rites and usages of any class of persons in Zanzibar.

I do not think that the provisions I have quoted permit a minor to change his religious I belief without the consent of his parents. I understand

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RAMADHANI CJ

these provisions to permit one already of a particular faith to perform what are required A by that faith regardless of the age. Thus for example, a Mohammedan child can fast during the month of Ramadhan even if he is under eighteen. Likewise a Mohammedan female can contract a marriage though she be under eighteen provided she is mature. However, the law recognises such a thing as age of discretion at which one could decide B for oneself on such matters as religion and marriage.

As I have said the only case I have been able to find which is on all fours with the present case is Re An Application by Barbara Simpson Howison. In that case the C Applicant, Mrs Howison, was a British citizen domiciled in Scotland. Her daughter, called Diane, went to Nairobi, Kenya, where she embraced the Islamic faith on 31st March, 1959 and married a Mohammedan youth called Saifuddin Taherali Patwa. Diane who had been a Christian was eighteen-and-a-half at the time. Mrs. Howison moved the Supreme Court of Kenya for an order that a writ of habeas corpus should D issue directed to Patwa to have the body of her daughter, Diane, brought before the court. Mrs Howison argued that Diane was a minor under twenty-one.

After reviewing various authorities the Supreme Court of Kenya, judgment being delivered by Rudd, J., decided that Diane had attained the age of discretion in law. The E Court said that the age of discretion was eighteen years. That decision was made in view of the fact that the age of majority for Kenya was twenty-one. This was the same as under the laws of the United Kingdom which recognise the age of discretion to be eighteen.

In Zanzibar the age of majority is eighteen and not twenty-one. The question is what F could be taken to be the age of discretion in the Isle. I have not been able to find any case that has been decided by this court or by any court in places where the age of majority is eighteen.

The decision in Re Howison's Application followed that of Agar-Ellies v Lascelles G (1883), 24 Ch. D. 317 where Brett, M.R. said that the age of discretion for boys was fourteen and for girls was sixteen. As I have already said according to the English law the age of majority is twenty-one.

For lack of any authority regarding this issue I think the main consideration in fixing the H age of discretion is the determination whether the daughter had capacity to fully understand what she was doing.

According to the facts of this case the daughter after making up her mind to marry the respondent approached her parents. But before that she had already told the respondent that the

question of marriage between them was impossible due to the difference in their religions. She had also refused to convert to Islam when she was I asked to do so by the
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RAMADHANI CJ
respondent. She decided to embrace Islamic faith after quite some time had elapsed. A
It is quite possible that she had decided to do so because she was pregnant with a child of the respondent and that she feared that her parents would disown her. But both her parents have assured her and before me that they would take her back if she denounced B the respondent. The daughter has refused. Her parents made it clear to her that if she did not denounce the respondent and return to them they will disown her. She replied without any hesitation that she did not want to return to them and that it is alright if she is no longer their daughter and that she had already found another mother (the mother of the respondent). C
I am satisfied therefore that she did not embrace Islamic faith out of fear of any eventuality. I am satisfied that she converted while comprehending the full import and the nature of her action. I am satisfied, therefore, that she has attained the age of discretion. Hence her change of faith is valid and cannot be annulled on the claim that she is a minor. D
Now, I have to look into the validity of this marriage. As I have already said the marriage was solemnised in Zanzibar. In this case by the Mohammedan Law of Marriage.
The Applicant contends that she did not give her consent to this marriage as the parent of the daughter. E
Rudd, J. in the Re Howison's Application at page 573 said:

"Now, it is also accepted by all authorities that the consent to a marriage, by a parent or a guardian, is part of the form of the marriage and is governed by the requirements of the lex loci celebrationis". F

Thus this question of consent is also governed by the Mohammedan Law. The Marriage and Divorce (Muslim) Registration Decree, Cap. 91 does not mention the issue of consent. However, Section 9(2) requires the Registrar of Marriages to register a G marriage after being satisfied that it was validly contracted under the Mohammedan Law. So the issue of consent has to be determined under that law. Section 22(c) has authorised forms to be devised for the implementation of the Decree. The form titled H "Registration of Marriage" made under the provisions of this decree has a place written "The signature of the parent or guardian". Thus the consent of the parent or guardian is recognised by the Decree.
The Mohammedan Law in respect of consent varies according to the schools. In this case it is appropriate that I follow the Shafei School. This court had previously decided I that a judge should follow his school in deciding cases and not that of the parties. (Mbwana v D.C. Pemba 5
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Z.LR. 20 at 24 and also Soud v Jokha 5 Z.L.R. 16). However, that stand has been A overruled by the Court of Appeal of Eastern Africa in Salim Alawi v Seyyid Saleh Alawi Civil Appeal No. 21 of 1953 from the High Court of Zanzibar in Civil appeal No. 11 of 1952. It is the school of

law of the parties that is to be followed. In the present case, however, it is fortunate that both the parties and the Chief Kadhi are Shafei. B

According to the Shafei school the consent of the parent (walii) is mandatory. Minhaj-et-Talbin as translated into English by Van Den Berg and Howard at page 284 (Book 33, Chapter 1) provides: "A woman cannot give herself in marriage, even though C her guardian should authorise her to do so".

In this case it is not disputed that the Applicant and her husband did not give their consent to this marriage. In fact they were completely uninformed until six days after the marriage when they were summoned and told by the Chief Kadhi. The marriage was D performed on Friday and they were summoned the following Tuesday.

The only question is whether this could nullify the marriage. But before I answer that question I must ask myself a preliminary question. Who is the 'Walii' of a woman? (Who is the person who can legally give a woman in marriage?) Minhaj, at the same page I E have already quoted, provides that:

"Nor can she give in marriage another woman, even as agent of the latter's guardian; nor effect a marriage as agent for the husband". F

Thus in this case the Applicant as the mother of the daughter cannot claim to be the "Walii" (a person qualified to give her daughter in marriage). After having made that determination it was perfectly in order to refuse the application forthright. However, I feel I should pursue this question of Walii and consent a little further. G

The proper Walii of a woman is her father. In this case the father did not petition. However, as he had endorsed the application of his wife as containing the truth and also as he gave his explanation before me, even though after I had summoned him, I feel it proper to determine this issue of Walii and consent in respect of him also. H

The father did not give his consent. But after being satisfied, as I am, that the daughter is now properly and legally a Moslem can it then be said that the father who is a Hindu is the Walii of the daughter? A non-Moslem cannot be a Walii of a Moslem. Therefore I the father could never have been the Walii of the daughter. Hence his consent was not necessary to validate the marriage.

1983 TLR p327

RAMADHANI CJ

According to the Mohammedan Law when there is no natural Walii the Kadhi on the A behalf of the State is the Walii (Minhaj at page 286). In this case the Chief Kadhi was properly the Walii.

The Applicant has also said that the daughter was three months' pregnant at the time of the marriage. She contends that under Mohammedan Law a pregnant woman cannot B contract a marriage. Such a marriage is void.

I have failed to obtain any authority in support of such contention. What I have been able to find out is that a woman cannot be married during the period of iddat. This comes about either when a woman is divorced or is a widow. One of the reasons for C iddat is that a woman

would not be married while she is pregnant with another man's child. In this case the daughter was not in iddat.

For the reasons I have given I refuse to nullify the marriage.

I should add that during the proceeding of this case; the daughter, in front of all, told her D parents that she is not prepared to part with the respondent and return home. Thus even if I could legally nullify the marriage or if I have erred in refusing to nullify it, to declare it null and void is futile. I will not have the power of stopping the daughter from going to the respondent.

Rudd J. said at page 572 of Re Howison's Application that: E

> It may fairly be assumed that if we were to release her from any alleged custody and control of the respondent she would immediately return to him of her own free will and consent unless F prevented from so doing by some form of constraint. But in view of the nature of these proceedings, and of the remedy that is sought, we have no power to order her to leave the respondent or to return to the applicant, nor have we the power in these proceedings to make an order against her which would have the effect of putting her in terrorem as regards this G court and its order in these proceedings.

The learned judge went further to say that: H

> In these circumstances, and having regard to the fact that she had undoubtedly attained the age of discretion in law, and having regard to the nature of these proceedings, we cannot see any legal justification for an order that, as far as we can judge, could only be made effective by I subjecting her to some form of physical restraint.

1983 TLR p328

RAMADHANI CJ

I concur with their lordships entirely. Briefly I would like to discuss two other things A which were contained in the application.

First, there is the question of the Spinsters Protection Decree, No. 5 of 1970. I am satisfied that the daughter was pregnant when she married. I am also satisfied that the Chief Kadhi was not aware of this. I am confident that if he had known he would not B have performed this marriage. I have no reason whatsoever to doubt his sincerity.

Under this Decree when such thing occurs both the man and the spinster are guilty and are to be sent to the Education Centre for five years. C

This Decree has not been strictly adhered to. Under the Decree in Section 6 a Special Committee is created with the responsibility of receiving reports, conducting investigations and directing the Police to prosecute. But in practice the Committee after investigations advises the persons convened to marry. If they agree then special contract D forms are filled-in and the persons get married. That then is the end of the matter. However, if the advice of the Committee goes unheeded then the issue is sent to the Police and eventually to the court. This was the explanation given to me in court by LT. Col. Anthony Musa, the Chairman of the Committee, and Ali Zamu the secretary. Thus even if this case had gone to the Committee the parties would have been advised to E marry just the same.

It is not improper to take this occasion to make my observations that this Decree is unsatisfactory. I feel that even the Committee is aware of this and that is why it is not following

the Decree to the letter:- If both the man and the spinster are sent to the F Education Centre for five years the one actually punished is the infant. In the first place the child will be born in the Centre. Secondly, it will be brought-up in the Centre. Thirdly, even if it should be brought-up outside the Centre by some relatives it will be denied the motherly love and care which is very crucial for any child in its first five years. G Not only that but the aim of the legislation is to protect spinsters and hence its title (Spinsters Protection Decree). But when the spinsters are punished as accomplices the purpose of the legislation is defeated. The spirit of the legislation is good but I suggest that the Attorney General and the Government should review the law. H

The Applicant also wanted to know whether the cell leader, Bi Mgeni Said, was given custody of the daughter by the Chief Kadhi for the night of 1st July until the morning of 2nd July. I am satisfied that the cell-leader was given that authority by a letter from the Chief Kadhi. I should like to comment that the Chief Kadhi erred in giving such authority. I hope that this will never recur. I

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Finally, I should add that when I received this petition I also received a letter from the A Consulate-General of India in Zanzibar. Though he did not indicate that fear, I feel I am duty bound to dispel any fear that a trend has started in the Kadhi's Courts of converting young women and offering them in marriage without consulting their parents. I am completely satisfied from these proceedings that there is no such trend and this incident B is not a beginning of such a trend. This is but a case of two youths who decided to do what they have done. This could happen any where as it did in Kenya in 1959 in the case I have already quoted.

As I am satisfied that the daughter has attained the age of discretion and that the marriage is valid under the laws of Zanzibar, I refuse the plea to annul the marriage and C to order the daughter to return to the Applicant.

However, as this case is convened with Decree No. 5 of 1970 I order Bashir-husein and Fatma to go to the Secretary of the Special Committee to fill in the contract of marriage forms.

D Order accordingly.

1983 TLR p329

E

[zRPz]BHOKE CHACHA v DANIEL MISENYA 1983 TLR 329 (HC)

Court High Court of Tanzania - Mwanza
Judge Mushi J

July 24, 1984
CIVIL APPEAL 3 OF 1983
Flynote

Tort - Malicious prosecution - Whether acquittal establishes falsity and malice of original F prosecution.

Torts - Damages - Whether evidence showing malicious prosecution enough to dispense with the need to prove damages.

-Headnote

The respondent had reported to the police that the appellant had created disturbance. G Upon that report the appellant was prosecuted, convicted and sentenced to four months' imprisonment. On appeal he was acquitted. The appellant filed a suit in the District Court for malicious prosecution. The trial magistrate dismissed the suit with costs to the respondent. He then appealed to the High Court. H

Held: (i) The fact that the appellant was subsequently acquitted does not establish that the original complaint was false and malicious;

(ii) it was for the appellant to prove that the respondent's report was malicious and that it was made without any reasonable or probable cause; I

(iii) proof of malicious prosecution is not enough to show that damage

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MUSHI J

had been suffered; for general damages the appellant would have to show that he A suffered mental or physical injury or some other injury to his fame or dignity as a result of the imprisonment.

Case Information

Appeal dismissed. B

No case referred to.

[zJDz]Judgment

Mushi, J.: The appellant, Bhoke Chacha, unsuccessfully sued the respondent, Daniel Misenya, on a claim which was couched in the following terms: C

"That the defendant falsely reported to police that plaintiff created disturbance in the public meeting and the plaintiff was arrested charged and convicted on that offence, plaintiff was sentenced to four months jail, plaintiff, appealed against conviction and sentence to the D District Court and his appeal was allowed in criminal case No. 30/78.

Therefore: Plaintiff claims 6,000/= from defendant being general compensation for the days which plaintiff stayed in jail or suffered and for the loss of his crop which were spoiled by wild E animals (pigs) and birds when plaintiff was serving sentence in prison".

The plaint, as it is, is not precise and clear as it should be. However, being as it is a product of a lay hand one has to read it and try to find out exactly what the plaintiff is up F to. From the plaint, it would appear that in substance the plaint is that the defendant made a false report to the police that he had created disturbance. As a result, of this false report, he was maliciously prosecuted. From the plaint, the appellant is claiming both general and special damages although he has not shown it in different heads. The G learned trial magistrate heard the evidence and after careful consideration of law and facts he came to the conclusion and I quote:

"I am not persuaded that the plaintiff has established malice and lack of reasonable or probable cause so as to sustain a suit for malicious prosecution". H

And the suit was dismissed with costs to the respondent. The appellant was dissatisfied with the decision and he has appealed to this court. He has written a long memorandum almost stating all what was stated at the trial but without raising specific points I challenging the decision of the trial court. I should immediately here state that the decision of the

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MUSHI J

district court cannot be faulted and the appeal will be dismissed. A

There is no dispute at all that the appellant was prosecuted and convicted and sentenced to four months' imprisonment. It is also a fact that the appellant was acquitted on appeal. It was also admitted that the respondent was the one who complained to the police against the appellant. As it was stated by the trial magistrate, even with all these B facts accepted, that by itself did not prove the appellant's claim. This is the correct legal position. The fact that the appellant was subsequently acquitted does not establish that the original complaint by the respondent was false and malicious. No amount of tearful or eloquent complaints will change this position. It is for the appellant to prove that the C respondent's report was malicious and it was made without any reasonable or probable cause. This can only be done by adducing evidence which will lead the court to make a finding whether the respondent acted maliciously and without reasonable and probable cause. There was no evidence at all on which the trial magistrate could have come to that conclusion. D

Even if there had been some evidence to satisfy the court that the respondent was malicious and acted without reasonable and probable cause, the appellant would still be required to establish that he suffered some injury for which he was entitled to some amount of damages. This he did not do. For the appellant to be entitled to general E damages, he would have to prove that he suffered mental or physical pain as a result of being sent to prison. The mere fact that the appellant was imprisoned, did not by itself justify grant of damages. Or at least the appellant should have adduced evidence to show that as a result of being imprisoned, his dignity or fame has suffered in the estimation of fellow citizens and that his standing in the society has suffered to his F detriment as a whole. There was nothing of this kind in the evidence. As for the allegations that some crop was eaten by pigs and birds there was no evidence to prove the allegations. It was upon the appellant to adduce evidence to prove the allegation and to prove exactly how much crop was worth. The appellant cannot expect the court to G grant what he has requested without proving to the satisfaction of the law that he is entitled to it. The suit was rightly dismissed and the appeal is without any merits and it is dismissed. The respondent is entitled to his costs in this court and the trial court. H

Appeal dismissed.

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A

[zRPz]NYABAGAYA MTANI v NYAKANYI KABERA 1983 TLR 332 (HC)

Court High Court of Tanzania - Mwanza

Judge Munyera J

September 27, 1984
CIVIL APPEAL 158 OF 1982
Flynote
Tort - Slander - Allegation of witchcraft - Jurisdiction of Primary Court. B
Tort - Slander - Publication - No publication where defamatory words uttered before respondent only.
-Headnote
The appellant had called the respondent a witch and the latter being aggrieved convened C and complained before a meeting of elders. In order to clear herself she went to a witch finder who certified that she was clean. Thereafter she sued the appellant for two cows as damages and expenses she incurred in travelling to the witch finder. The trial D court awarded damages and expenses as prayed. The appellant appealed to the District Court which set aside the damages but affirmed the expenses. She appealed further to the High Court.
Held: (i) The Primary Court had jurisdiction to try the case since an imputation of E witchcraft is a known customary law tort of defamation;

(ii) since the defamatory words were uttered before only the respondent there was no publication; the repetition of the words to the elders was done by the respondent which did not amount to publication by the appellant. F
Case Information
Appeal allowed.
No case referred to.
[zJDz]Judgment
Munyera, J: The respondent was the plaintiff before Mugango Primary Court. She G sued the appellant for damages for slander. She stated that on 23/11/81 at about 9 a.m. the appellant passed by her (respondent's) house. It appears she (appellant) was drunk. She addressed respondent as a witch, that she (respondent) had caused the death of H their child. At that time nobody else was present except these two women. The respondent felt bitter about the appellant's remarks. At 11 a.m. same day she convened a meeting of elders and complained to them. In order to clear herself she offered to go to Ukara Island to contact a witch finder. She raised Shs. 3,080/= to enable her go. I There she said the witch finder certified her clean. She returned and filed this suit claiming damages 2 cows and reimbursement
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of her Shs. 3,080/= she spent in going to Ukara. She won the suit. The trial court A ordered the appellant to pay the two cows and Shs. 3,080/= plus costs. She appealed to the District Court and won part of the appeal. The District Court set aside the award in relation to the two cows but confirmed that in relation to Shs. 3,080/=. She appealed further to this court. B
There are two main arguments in this appeal. First (para 4) that the Primary Court had no jurisdiction over witchcraft cases. Secondly (para 3) that the appellant did not force the respondent to go to Ukara Island nor did she accompany her. Therefore she was not liable to the

costs the respondent alleged she incurred. I start with the question of C jurisdiction. It should be remembered that the suit concerned defamation (slander). I do not agree that Primary Court had no jurisdiction. Witchcraft is something known to local people from time immemorial. If somebody imputed witchcraft to another whom people knew was not a witch the imputer would be told to compensate the latter. This is a D customary law tort of defamation. The Primary Court had jurisdiction. The appellant's argument in that respect fails. I now go to the merits of the case. Going by the respondent's own evidence the remarks by the appellant that she was a witch were uttered when they were only two and nobody else heard them. She on her own initiative E called a meeting and repeated what the appellant had told her. This did not amount to publication by the appellant. On this ground the appeal succeeds, I allow it, set aside the award of Shs. 3,080/= and dismiss the respondent's suit in its entirety. The appellant did not appear so no costs.

F Appeal allowed.

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G

[zRPz]ALI SUNGITA v SUMWA MDIU AND OTHERS 1983 TLR 333 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

July 28, 1983
CIVIL APPEAL 35 OF 1983 H
Flynote
Civil Practice and Procedure - Failure or refusal by the defendant to answer to the claim - Primary Courts Rules 1964.
Torts - Slander - Jurisdiction of Primary Court - Nyaturu customary law. I
1983 TLR p334
LUGAKINGIRA J
-Headnote
The appellant had successfully sued the four respondents in the Primary Court for A slander and was awarded Shs. 4,000/=. The respondents appealed to the District Court which reversed the Primary Court's decision. The appellant then appealed to the High Court.
Held: (i) Where in the Primary Court, the defendant being present, unreasonably fails or B refuses to answer to the claim, the court would be entitled to allow the plaintiff to prove his claim and thereafter pass judgment according to law;

(ii) in the absence of a Nyaturu customary law on slander the Primary Court had no jurisdiction. C
Case Information
Appeal allowed.
Cases referred to:

1. B.H. Lakhani & Anor v P.H. Lakhani [1978] L.R.T. n. 26. D
2. Abdallah v Singu [1972] H.C.D. n. 12.
3. Nkulu v Mkungile [1972] H.C.D. n. 70.

[zJDz]Judgment

Lugakingira, J.: The appellant sued the four respondents in the Primary Court for E defamation. He was successful and was awarded damages of Shs. 4,000/= as claimed. The respondents appealed to the District Court and the appellate District Magistrate reversed the trial Court's decision on what appear to be allusions to privilege. That F prompted the present appeal. In view of the decision I intend to take, I do not consider it proper or desirable to go into the details of the case. I will only remark that no one would have sat back and stomached the kind of accusations levelled against the appellant. He had every reason to sue. In this judgment I am preoccupied by two matters: the conduct of the case by the trial magistrate and whether the Primary Court G had jurisdiction in the subject matter.

On 3.7.81 the trial magistrate read over the claim to the defendants/respondents and required their answers thereto. That seems to have been in accordance with Rule 44 of the Civil Procedure in Primary Courts Rules, 1964 read with Rules 18(1) and 20. H

The first and fourth defendants denied the claim, but the second and third defendants, perhaps in malice or by visitation of God, remained silent. Something unusual then followed. The trial magistrate thereupon remanded the second and third defendants stating "... Wanawekwa mahabusu mpaka kesho tarehe 4.7.81 labda wataweza I kujibu ili shauri lipangiwe tarehe ya kuendelea" Indeed when the two defendants

were released the following day, they had no more appetite for their previous game, A hence they promptly admitted the claim.

I had heard of such aberrations before and had encouraged myself to believe that they were misinformed slurs, but here was a case in point. This apparent abuse of power was most unfortunate and most reprehensible. It seems, indeed, that there is no B provision in the Rules which meets this kind of situation - a provision as to what a Primary Court would do where the defendant, being present in court, refuses or fails to answer to the claim. The provisions there are are devoted to appearances and consequences of non-appearance. There is nothing equivalent to 0.8, r. 14(1) of the C Civil Procedure Code, 1966 where, if the defendant fails to present a written statement of defence, the court may proceed and pronounce judgment against him. Still, the apparent vacuum in the Primary Court Rules would not justify the high handedness such as was resorted to in the instant case for, even where there are no express provisions to go by, a court of law cannot constitute itself an instrument of judicial violence. Let us D hope we will hear no more of this.

What then is the position? A little more sober reflection should have suggested the answer to the learned trial magistrate. A situation like this may be approached on the principle that a plaintiff's claim will not be defeated merely because the defendant elects E to be dumb, nor will

his remedy be postponed until it pleases the defendant to open his mouth. It follows that the court has inherent power to proceed and dispose of the case.

I am of the opinion that where, in the Primary Court, the defendant, being present, unreasonably fails or refuses to answer the claim, the court, unless it considers it F desirable to adjourn the hearing to another date, would be entitled to permit the plaintiff to prove his claim and then pass judgment according to law. A judgment obtained this way would not in my view be ex parte for it is as if the defendant, being present, had not evidence to contest the claim. This situation may be compared to the position under 0.8. G r. 14(1) where, if the defendant fails to present a written statement of defence and, being refused an adjournment, takes no further part in the case, the proceeding does not thereby become ex parte: B.H. Lakhani & Anor v P.H. Lakhani [1978] LRT n. 26.

The second matter presents no difficulty. The jurisdiction of Primary Courts in matters H of a civil nature inter alia arises where the law applicable is customary law. At issue in the instant case was the tort of defamation in the nature of a slander. The parties are members of the Nyaturu community. There is nothing in the evidence or in the opinion of the single assessor which indicates any Nyaturu customary law on the subject. I have I also been unable to find some other source where this

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law could be derived. On the contrary, previous decisions of this court in cases A originating from the same or similar community point to the same difficulty: Abdallah v Singu [1972] HCD n. 12 and Nkulu v Mkungile [1972)] HCD n. 70. I am therefore of the view that in the absence of a Nyaturu law on this subject, the Primary Court had B no jurisdiction to entertain the suit. That alone suffices to nullify the proceedings but there was something more. As just pointed out the trial magistrate received the opinion of one assessor although he sat with two assessors throughout. The record shows that it was an oversight, and that the second assessor was absent, for there are to be found these entries:

> "MAONI YA WASHAURI" C
> Mshauri wa Mwanzo".

But immediately after the words of the first assessor comes the judgment and there is no D reference to the second assessor.

The omission, by whatever cause, was fatal and rendered invalid the proceedings as a whole. In the Primary Court every decision has to be taken after receiving the opinion of every assessor.

For the totality of these reasons, these proceedings must be and are hereby quashed in E their entirety. The appellant is advised, if so minded, to proceed against the respondents in the Resident Magistrate's Court. Incidentally, I seem to recall a similar case involving the same parties before the Resident Magistrate's Court, Singida. Opportunity should then be taken to ascertain the position.

F Appeal allowed.

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G

[zRPz]ISSA ATHUMANI MDUYAH v REPUBLIC 1983 TLR 336 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

October 18, 1984
CRIMINAL APPEAL 53 OF 1983 H
Flynote
Criminal Practice and Procedure - Charges - Whether soliciting and receiving a bride can be charged as distinct offences.
-Headnote
The appellant was charged with and convicted of three counts of corrupt transaction by I agent. The first count alleged that on 13.8.82 the appellant
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LUGAKINGIRA J
corruptly solicited Shs. 500.00 from one person as an inducement to forbear from A instituting criminal proceedings against that person for making pombe business in unlicensed premises. In the second count he was alleged on the same occasion to have received Shs. 200.00 from the same person, in the same connection; and the third count accused him of further receiving in the same connection Shs. 100.00 from the same person. On appeal: B
Held: (i) It is improper to charge the accused both with soliciting and receiving as distinct offences, when they arise from the same facts;

(ii) where the facts disclose both soliciting and receiving, the proper charge would be that of receiving only; C

(iii) where the prosecution in some instances is not certain whether receiving as such can be established, the proper practice is to charge both soliciting and receiving as alternative offences leaving the court to enter a conviction on whatever of the two offences is proved; D

(iv) where there is an allegation of corrupt transaction by agent, the charge should mention the fact that the accused was acting in relation to his principal's affairs, the omission of which is serious as the relationship is an ingredient of the offence.
Case Information
Appeal dismissed. E
Case referred to:

1. Amir Nathoo v R. [1970] H.C.D. n. 51

[zJDz]Judgment
Lugakingira, J.: The appellant was a ward secretary at Chamwino in Dodoma. He is F presently in prison following conviction of three counts of corrupt transaction by agent. I do not at this stage have to comment specifically on the manner the charges were framed, it being sufficient to state the substance thereof. In the first count it was alleged that on 13.8.82 the appellant corruptly solicited Shs. 500.00 from Sofia Sanga as an G inducement to forbear from taking criminal proceedings against her for running a pombe business in unlicensed premises. The

second count alleged that on the same occasion he corruptly received Shs. 200.00 from the same person in the same connection; and the third count alleged that on the following day he corruptly received a further Shs. 100.00 H from the same person, again in the same connection. Following conviction he was sentenced to three years' imprisonment on each count, the sentences running concurrently. He then appealed in a lengthy memorandum containing a great deal of nonsense and added more nonsense at the hearing of the appeal. I

The facts of the case were simple. On the morning of 13.8.82 the

appellant and two militiamen set out in search of illegal pombe dealers. A

After going here and there they arrived at the home of Sofia Sanga and found her selling a kangara brew. The appellant demanded to know why she was selling pombe at unauthorised hours and without a permit. Sofia begged for forgiveness. He ordered her to carry her liquor and follow him "to the station". She complied. After walking a B distance he told her to give him Shs. 500.00 and go free. She had no money. He told her to raise it from friends. They were then near the house of Scolastica Lungwa (PW3), a friend of Sofia. Sofia entered the house accompanied by Bertha Katande (PW2) who had also heard the solicitation. Sofia related her plight and PW3 gave her C Shs. 200.00. They came out and found the appellant waiting. Then he, Sofia and PW 3 entered an old abandoned house, leaving the appellant's companions outside, and there the appellant was given the money. He received it grumbling, saying that he would settle for at least Shs. 300.00. Sofia begged for time to find Shs. 100.00. He told her to take D it to him at his office. Next morning Sofia called at the Police Station and related her story. She was given a currency note for Shs. 100.00 whose numbers were noted and three policemen in plain clothes accompanied her. When they arrived at the appellant's office Sofia entered and gave him the note. As she left, the three policemen and the E CCM branch chairman who had arrived there entered the appellant's office and confronted him for receiving a bribe. He denied it and said that Sofia had paid a debt. He was still holding the note which he then dropped. It was picked up and he was taken away and charged accordingly.

The appellant's defence, like his memorandum of appeal, was a lengthy story, mostly of F irrelevancies. I will extract the relevant parts only. He related that indeed on 13.8.82 he was engaged in looking for illegal pombe sellers. He eventually arrived at Sofia's home and found her selling Kangara. He demanded to know why she was selling pombe before authorised hours and without a permit. She told him she was about to G take her pombe to the pombe shop. He then ordered her to do so and left. Next day Sofia called at his office but when she saw that he was with one Juma Hassani she went out. He decided to follow her to know what her problem was, but when he reached the door he was confronted by three men and the branch chairman. One of the men then H tried to push his hand into the appellant's pocket but failed. He was told he had received a bribe but denied it. He was then shown a note on the floor and forced at gunpoint to say "I have received it". He was pressed further and said Sofia was paying a debt. He was then arrested and charged. Before this Court he stated that he had nothing to add

to his memorandum but had a message for me. He informed me that the whole affair I was conspiracy between Sofia and senior police officers for whom
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LUGAKINGIRA J
she brewed pombe. He also instructed me, literally so, to study the evidence. A
I have duly studied the evidence and I would say at once that the convictions were merited. The learned trial magistrate believed Sofia and Bertha on the soliciting. I similarly do not see why these women should have lied. The appellant and his witnesses B were therefore rightly adjudged liars. The trial magistrate again believed Sofia and Scolastica on the receipt of Shs. 200.00. I again find no reason to differ. The same applies on the receipt of Shs. 100.00. There was absolutely no reason for the various prosecution witnesses to testify falsely and the appellant suggested no reason at the trial. The aspect of conspiracy which the appellant raised merely for my information deserves C no consideration.
There are only two matters of practice and procedure which call for comment. First of all, as already noted, the appellant was charged with both soliciting and receiving as distinct offences. I think that this was improper. Whereas soliciting and receiving are D indeed separate offences, I think it is superfluous to charge both distinctly when they arise from the same facts. I believe that where the facts disclose both soliciting and receiving the proper charge would be that of receiving only. There may be instances where the prosecution is not certain whether receiving as such can be established. In such a case it would be proper to charge both soliciting and receiving but as alternative E rather than independent offences.
Secondly, it is noted that the charges invariably alleged corrupt transaction "with agent" and made no mention of the fact that the appellant was acting in relation to his principal's F affairs. The charges should of course have alleged corrupt transaction "by agent". Nevertheless, I think too that this grammatical error was harmless as there was no doubt that the appellant was the agent. On the other hand, the omission to state the relationship of principal and agent was a serious one, that relationship being an ingredient of the offences. I have pondered over the effect of this but I again think that the G omission gave rise to no injustice. The appellant was well aware of the nature of the charges and was not embarrassed in his defence. In the first place the charges otherwise mentioned that he did what was alleged of him as "Katibu Kata" and, secondly, in his own defence, he stated that he was carrying out the orders of the Divisional Secretary. H He therefore knew, and the charges implied, that he was acting as an official of the Government. I am therefore satisfied that the omission occasioned no failure of justice and in this view I am strengthened by the decision in Amir Nathoo v R. [1970] HCD n. 51 where the same question arose under the repealed Cap. 400. I
1983 TLR p340
In the end, I set aside the conviction and sentence in count one which was superfluous, A but I sustain the convictions and sentences in counts two and three. To that extent the appeal stands dismissed.
B Appeal dismissed.
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[zRPz]CHRISTIAN MBUNDA v REPUBLIC 1983 TLR 340 (HC)

Court High Court of Tanzania - Mtwara
Judge Msumi J

March 27, 1985
CRIMINAL APPEAL 49 OF 1982 C
Flynote
Criminal Law - Theft - Ingredients of the offence.
Criminal Law - Stealing by servant - Whether covers situation where the thing stolen is not the property of accused's employer. D
Criminal Law - Stealing by agent - Whether cognate to the offence of stealing by servant to make the former minor to the latter.
-Headnote
Appellant was charged with stealing by servant contrary to sections 271 and 265 of the E Penal Code. The trial magistrate cleared him of the offence but went on to convict him for what he thought to be a minor offence of stealing by agent contrary to section 273(b) and 265.
Appellant being an employee of his village council as cashier was entrusted with Shs. 10,000/= loaned by the council from the National Milling Corporation for the purpose of F buying crops. In response to the prosecution's allegation that the appellant neither used the money for buying crops nor could account for it, he said that he used the money in various village projects as ordered by the village authority.
Held: (i) It is an elementary rule of law that in order to convict an accused of theft the G prosecution must prove the existence of actus reus which is specifically termed as asportation and mens rea or animus furandi;

(ii) in this case there was asportation but the appellant had no guilty mind or animus furandi when he used the money for the purpose other than buying millet from the village; H

(iii) it is not necessary for one charged with stealing by servant contrary to section 271 of the Penal Code that the property stolen should belong to the accused's employer, but the section covers a situation where, though the stolen property does not belong to the employer, it came into possession of the employee or the accused on I account of his employer;
1983 TLR p341
MSUMI J

(iv) the offence of stealing by agent is neither minor nor cognate to stealing by A servant, as proof of the latter does not necessarily notify the accused of the essential elements of the former;
Case Information
Appeal allowed.
Cases referred to: B

1. Robert Ndecho and Anor. v R. [1951] 18 E.A.C.A. 171.
2. R. v Home [1944] 11 E.A.C.A. 107.
3. R. v Muhoja [1942] E.A.C.A. 70.
4. Ali Mohamed Hasan Mpanda v R. [1963] E.A. 296. C

[zJDz]Judgment

Msumi J.: Appellant was charged with stealing by servant contrary to sections 271 and 265 of the Penal Code. At the end of the day the learned trial Resident Magistrate acquitted him but he entered a substituted conviction of stealing by agent contrary to D sections 273(b) and 265, presumably acting under the provisions of section 181 of the Criminal Procedure Code. Any way, after being so convicted appellant was sentenced to imprisonment for a good term of seven years. In this appeal appellant is challenging both the conviction and sentence. The learned Senior State Attorney who appeared for E the Republic joined hands with the learned defence counsel from Tanzania Legal Corporation in being of the view that the conviction was faulty hence not supportable.

It is in evidence that appellant was employed by his village council as a cashier. In this capacity he used to receive money from the National Milling Corporation and other crop F authorities on behalf of the village for the purpose of buying sundry crops from the peasants. It is not in dispute that among the money received by him from N.M.C. at the material time was Shs. 10,000/= which was for the purpose of buying millet. It is the strong contention of the prosecution that appellant neither used the money for buying millet nor did he otherwise account for the same. G

To this allegation, appellant's explanation has been, throughout, that he used it in various village projects after he was ordered to do so by the village authority. Appellant maintained that the village leadership sanctioned the use of this money in the alleged projects by authorising the relevant payment vouchers. For this reason, there had been H a protracted adjournment of the case in order to enable either the police or the village council to make available to the court these payment vouchers. But none of them was available and the police and the village authority held each other responsible for it. The learned trial magistrate thus unilaterally ordered the appellant to proceed with his defence I without these vital documents.

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MSUMI J

The sole ground in support of this appeal is the trial magistrate's finding of guilt A notwithstanding the fact that the prosecution denied the court the availability of the alleged various documents according to which the village leadership authorised the appellant to pay out the money for various village projects. With respect, the force B behind this argument is beyond resistance. It cannot be refuted that as far as N.M.C. was concerned, the recipient of this money was the village council. Since it was not practicable for all the members of the council to keep the money jointly, they engaged the appellant for that purpose. But still the council retained overall control of how the C money was to be used. As between the appellant and the council it was quite legitimate for the latter to direct the former on how the money should have been used. Appellant's sole responsibility was to ensure that so long as the money remained in

his hand it was safe. Admittedly appellant knew or ought to have reasonably known that the money was for buying crops from the peasants. D

However, this fact is not derogatory to the village council's cover-all control of the said money. After all the N.M.C. communicated with the village authority, and not with the appellant, in all general matters pertaining to the buying of crops.

In his judgment the learned trial magistrate seemed to believe the appellant that the E money was used in village projects at the instigation of the village council. For this, the trial magistrate was of the opinion that appellant was taken for a ride by the village council. If that is the case then how did it happen that the court convicted him of the theft of the said money? It is obvious that appellant did not have the requisite animus F furandi when he released the money for the said village projects. I don't think that the learned trial magistrate needs to be reminded of the elementary rule of law that in order to convict an accused of theft the prosecution must prove the existence of actus reus which is specifically termed as asportation and mens rea or animus furandi. In the G instant case there was undoubtedly asportation but definitely appellant had not the requisite guilty mind or animus furandi when he used the money for the purpose other than buying millet form the village.

As pointed earlier, the learned trial magistrate cleared the appellant of the charge of stealing by servant and in the alternative he convicted him of stealing by agent. The H reason which he gave for this is found at the end of his judgment when he said:

.... However, I would like to point out at this juncture that the charge is defective in the sense that the accused is not an employee of the N.M.C. so he should have been properly charged I with stealing by agent c/s 273(b) of the Penal Code and not stealing by servant.

1983 TLR p343

MSUMI J

With respect, the learned trial magistrate's reasoning is not supported by the clear A wording of section 271 of the Penal Code. For easy reference, I am producing the same fully:

271. If the offender is a clerk or servant and the thing stolen is the property of his employer, or B came into the possession of the offender on account of his employer, he is liable to imprisonment for ten years.

As the charge sheet shows, in this case appellant was employed by Magazini Ujamaa village as an accountant. The N.M.C. advanced the Shs. 10,000/= to the said village for C the purpose of buying crops. Hence when appellant got the said money, he did so on account of the village - his employer. The prosecution was therefore perfectly right to charge him under section 271. It is not true, as the learned trial magistrate appears to think, that section 271 comes into play only where the property belongs to the accused's D employer. It also covers a situation where, though the stolen property does not belong to the employer, it came into possession of the employee or the accused on account of his employer.

But even if the learned trial magistrate's reasoning was sound, still the purported alternative conviction is not supportable. Though he did not put it in clear terms, it is E obvious that the learned trial magistrate depended on section 181 of the Penal Code to support his decision. Commenting on the similar provision of the Criminal Procedure Code of Kenya, the Court of

Appeal for Eastern Africa, in Robert Necho and Anor v R. (1951) 18 E.A.C.A. 171 at p. 174 said: F

In order to make the position abundantly clear we restate again that ... where an accused is charged with an offence, he may be convicted of minor offence, although not charged with it, if G that minor offence is of a cognate character, that is to say of the same genus and species.

See also R.v Home (1944) 11 E.A.C.A. 107 and R v Muhoja (1942) E.A.C.A. 70. In this case it cannot be rationally argued that the offence of stealing by agent is cognate to stealing by servant. Both offences belong to the genus and species of the offences of H theft. But I am doubtful if stealing by agent is minor to stealing by servant. Whether or not an offence is minor to the charged one is a question of law. The test in determining it was clearly stated by this court in Ali Mohamed Hassan Mpanda v Rep. [1963] E.A. at 296 when Spry, J. said: I

1983 TLR p344

... first whether the circumstances embodied in the major charge necessarily and according to A the definition of the offence imputed by that charge constitute the minor offence also, and secondly whether the charged major offence gives the accused notice of all circumstances going to constitute the minor offence intended to be substituted. B

Thus in this case for the appellant to be convicted under section 273(b) the prosecution must prove, inter alia, that he came into possession of the alleged stolen property as an C agent of either real owner or special owner. But this requirement is not part of the essential constituents of the offence under section 271. Thus a proof of the offence under section 271 does not necessarily notify the accused of the essential elements of the offence under section 273(b). For this reason the purported substituted conviction in this case is not sustainable. D

After hearing this appeal, I quashed the conviction and set aside the sentence; and ordered for the immediate release of the accused.

The said order was made for the reasons contained in this judgment.

E Appeal allowed.

1983 TLR p344

F

[zRPz]E.M.H. CHACHA T/A MWANZA MECHANICAL ENGINEERING v KATIBU WA WILAYA MAGU AND CHAMA CHA MAPINDUZI MAGU 1983 TLR 344 (HC)

Court High Court of Tanzania - Mwanza

Judge Lawena DR - Taxing Master

June 13, 1985

CIVIL CASE 50 OF 1983 G

Flynote

Civil Practice and Procedure - Costs - Taxation of - Costs incidental to suit - Whether include damages and interest.

-Headnote

The petitioner presented a bill of costs amounting to Shs.39,269/50 for taxation after he H had successfully sued the respondents jointly. Among the items in the bill was a claim for damages incurred due to stoppage of a cheque drawn by the respondents in favour of the petitioner and a prayer for interest at the court's rate. I

Held: (i) Costs claimed in a case must be costs incidental to the suit; loss

and damage incurred does not fall within this category and neither does interest. A

Case Information

Order accordingly.

No cases referred to. B

[zJDz]Judgment

Lawena, D.R. (Taxing Master): This is a taxation of the successful petitioner's bill of costs. The bill of costs was filed by the plaintiff Mr. E.M. Chacha for and on behalf of Mwanza Mechanical Engineering. During the hearing of this bill of costs the defendant was not present though he was served with the notice. C

There are 8 items in the bill of costs which make a total of Shs. 39,269.50. The judgment-creditor prayed that the bill of costs be taxed as presented. He claimed that after the judgment had been passed in his favour, he approached the defendants on several occasions so that they could pay him his money. D

Concerning item 1 which were court fees the plaintiff had to pay in opening the suit, I had nothing against it as it was the right of the plaintiff. I will thus tax the same as presented. E

Under item 3 the plaintiff stated that the amount was for transport charges to and from Court on 9 various occasions at the rate of Shs. 500/= per trip. He stated that he used to travel from Mwanza South to this court and after the case he returned to his office. I have deeply considered the amount claimed and no one can doubt that it is excessive. Even if one could hire a taxi to and from the court the amount per trip could not reach F the amount claimed by the plaintiff. I have perused the record and I admit that the plaintiff made the 9 trips as indicated in the bill of costs. The plaintiff has not presented any receipts to support his claim. In any case I would think that Shs. 100/= to and from the court would be a reasonable amount as a transport charge. I thus take off Shs. G 3,600/= from item No. 3 and allow Shs. 900/= which I think is reasonable.

In the same manner in item 6 the plaintiff claims Shs. 5,600/= as transport charges to and from Magu and accommodation expenses in response to the defendant's letter. Again as I stated above the plaintiff never presented any receipts to support his claims. The only H supporting document the plaintiff has filed is a photocopy which indicates that he was called by the defendants for the settlement of the debt. However the plaintiff has failed to prove for how long he stayed at Magu. Thus this court has not been provided with some evidence to allow the costs. Thus the whole amount is taxed off. I

In item No. 7 the plaintiff is claiming for loss and/or damages incurred

due to the stoppage of the cheque. It has always been held that costs claimed in a case A must be costs incidental to the suit. The loss and or damage incurred does not fall under that head and cannot be entertained in this taxation of bill of costs. This argument would also apply in item No. 8 where the plaintiff prays for interest at court rates. I thus tax off items No. 7 and No. 8 as they are not costs incidental to this suit. B

Having so held as above this bill of costs is taxed at Shs. 2,926/=.

Order accordingly.

1983 TLR p346

C

[zRPz]JULIUS PETRO v COSMAS RAPHAEL 1983 TLR 346 (CA)

Court High Court of Tanzania - Bukoba

Judge Mwalusanya J

October 17, 1985 D

(PC) CIVIL APPEAL 81 OF 1983

Flynote

Civil Practice and Procedure - Appeal from Primary Court - Whether Civil Procedure Code Act No. 49 of 1966 applies - R. 2 Civil Procedure (Appeal in Proceedings originating from E Primary Courts) Rules G.N. 312 of 1964.

Civil Practice and Procedure - Appeal from Primary Court - Appearance by "public writer" F - Whether "agent" - R. 2 G.N. 312 of 1964.

Civil Practice and Procedure - Appeal from Primary Court - Appearance by "public writer" as "Recognized agent" - Whether proper - S. 33 Magistrates' Courts Act No. 1 of 1984 and O. III r. 2 C.P.C.

Civil Practice and Procedure - Recognized agent - Appearance by - Agent appears for G remuneration - Whether recognized agent ss. 41(1) and 70 Advocates' Ordinance Cap. 341 and O. III r. 2 C.P.C.

Evidence - Child born 7 months after father's death - Father cohabited with mother - Whether child legitimate.

Inheritance - Wills - Testator indicated wanted car to be sold - Order for sale - Some H beneficiaries don't want sale - Whether order for sale can be rescinded.

-Headnote

The appellant had instituted a suit against the administrator of the estate of his deceased father in the Primary Court. In the Primary Court and subsequently on appeal to the I District Court he appeared by a "Public writer", whom he had appointed as his attorney relying on the fact that

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MWALISAMYA J

the Civil Procedure Code allowed an appearance by a "Recognized" Agent. A Subsequently on a further appeal to the High Court the public writer sought to appear on behalf of the

Appellant. Also, he argued that his half-brother who was born 7 months after their father's death was illegitimate and therefore not entitled to a share in the deceased's estate. B

Held: (i) The word "relative" as used under section 33 of the Magistrates' Courts Act should be restricted to near relatives; likewise, "members of the household" should be interpreted ejusdem generis to mean related members of the household; the definition of the word "relative" would not be extended to include a person who works for gain under C the title of "public writer" or "recognised agent" but is not whatsoever related by blood to any of his clients;

(ii) section 33 of the Magistrates' Courts Act governs appearances on behalf of the parties at the Primary Courts and District Courts (when hearing Appeals) only but D not the High Court; appearances in the High Court have to be made either by the parties themselves or their advocates only and not "agents",

(iii) the Civil Procedure Code Act No. 498 of 1966 does not apply to the High Court when hearing appeals originating from Primary Courts. It applies to the High Court, Resident Magistrates' Court and District Courts when they exercise original civil E jurisdiction and also applies when the High Court hears appeals originating from the District Court or Resident Magistrates' Court;

(iv) appearance by a recognised agent who works for gain by dint of agency is expressly prohibited by s. 41(1) of the Advocate's Ordinance; also, section 70 of the F Advocate's Ordinance implies that representation on behalf of the parties is not prohibited altogether but permitted in certain circumstances only; these are given under s. 33 of the Magistrates' Courts Act and in respect of the Civil Procedure Code, where a "genuine" recognized agent represents a party in a suit; and not a professional agent who G makes his living by representing clients in court;

(v) where a child is born during wedlock or during 280 days after the death of the husband, there is a rebuttable presumption that such child is legitimate;

(vi) the testator's desire as expressed in the will has to be complied with. H

Case Information

Appeal dismissed.

No cases referred to. I

1983 TLR p348

MWALISAMYA J

[zJDz]Judgment

Mwalusanya, J.: Perhaps in this appeal for the sake of convenience I will start with the A issue of representation of parties in our courts. That is, apart from an advocate by whom is a party allowed or permitted to be represented in court - at the trial and on appeal? There appears to be a misapprehension on the matter or is it a deliberate B flouting of the law? This is because one Leopold s/o Rwizandekwa a known public writer in Bukoba wrote a letter addressed to a judge seeking adjournment on behalf of the appellant in this appeal. He said he would represent the appellant at the hearing of the appeal as he did at the District Court 'as a recognised agent'. When I questioned C him a few days later he told me that that is how he makes a living. In

short he masquerades as an advocate for a number of poor peasants whom he milks for all their worth under the veneer of 'recognised agent' of the said litigants.

In the case of Felician Evarister v Bi Dominitina Kaijage: (MZA) (PC) Civil Appeal D No. 98/1982 (unreported) I had occasion, though briefly, to deprecate the practice of 'public writers' or 'recognised agents' whatever the nomenclature, who represent parties in court for gain and I described it as a 'sordid' practice. I wish to reiterate that view and dispel any wrong impressions that these characters may be harbouring. E

At the District Court the public writer presented an affidavit duly stamped and attested before a magistrate to the effect that the appellant Julius s/o Petro by virtue of Rule 2 of the Civil Procedure (Appeals in Proceedings Originating from Primary Courts) Rules G.N. 312/1964 had appointed Leopold s/o Rwizandekwe as his 'recognised agent' for F the purpose of representing him on appeal at the District Court and other High Courts. And so the man purported to represent the appellant at the district Court and High Court not because he was a relative of the appellant but because he was a 'recognised agent' for the same.

Now Rule 2 of G.N. 312/1964 defines what the word 'agent' means. It says that agent G means an advocate or any person who according to s. 29 of the Magistrates Court Act Cap. 537 is permitted to appear and act for any party in a suit.

And s. 29 of the M.C.A. Cap. 537 states as follows: H

(1) No advocate or public prosecutor as such may appear or act for any party in a Primary Court.

(2) Subject to the provisions of subsection (1) and (3) of this section and to any rules of court relating to the representation of parties, a Primary Court may I permit any relative or any member of the household of any party to any proceeding of

a civil nature, upon the request of such party, to appear and act for such party. A

(3) In any proceeding in a Primary Court to which a body corporate rate is a party (including proceedings of a criminal nature) a person in the employment of the body corporate and duly authorised in that behalf, other than an advocate, may appear and act on behalf of that party. B

I think it is clear so far that any one purporting to appear on behalf of a party either at the Primary Court or at the District Court (When hearing of appeals), must cite s. 29 of the MCA Cap. 537 as his authority for the same. Neither does Rule 2 of G.N. 312/64 C nor s. 29(2) of the MCA Cap. 537 use the phrase 'recognised agent' which indeed is an innovation of the public writer. Under s. 29(2) of MCA Cap. 537 a party can only be represented by 'any relative or any member of his or her household'. As to what is 'relative' it is not defined but I would settle for the definition given by the Concise D Oxford Dictionary 5th Ed. (1975) that a relative is a kinsman or kinswoman to whom one is related by blood or marriage. At least there should be closeness of blood relationship. On the principle of ejusdem generis rule of interpretation the word 'relative' should be restricted to near relatives not distant relatives, so that we do not

venture very E far from related members of the household contained on the second part of that phrase.

And in any case by any stretch of imagination the definition of the word 'relative', though nebulous, would not be extended to include a person who works for gain under the title of 'public writer' or 'recognised agent' but is not whatsoever related by blood to any of F his clients.

Under the new Magistrates' Court Act No. 2 of 1984 the provisions of s. 29 of the former MCA Cap. 537 are now contained in identical form in section 33. So what I have just tried to expound above applies with equal force to the new Act. G

It needs repeating for the sake of emphasis that s. 29 of MCA Cap. 537 (s. 33 of the new Act) governs appearances on behalf of the parties at the Primary Courts and District Courts (When hearing Appeals) only but not the High Court. So the public writer was wrong to think that the same section applies for appearances on behalf of parties at the High Court. H

For the High Court appearances on behalf of the parties for appeals originating from the Primary Courts, the governing section is s. 30(1)(a) of MCA Cap. 537 (for the new Act it is s.34(1)(a)). The section in question reads; I

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MWALISAMYA J

(1) Save where an appeal is summarily rejected by the High Court, a court to which an A appeal lies under this Part shall cause notice of the time and place at which the appeal will be heard to be given.

(a) to the parties or their advocates'. B

That is the only section applicable in case of the High Court. As it can be seen for any one with eyes to see, the section talks of parties and advocates only. It is only through courtesy that sometimes relatives or agents of the parties are allowed to appear at the High Court on behalf of the parties. No one can claim that it is a right. C

Elsewhere the public writer has argued that he thought the Civil Procedure Code Act No. 49 of 1966 was applicable to the High Court when hearing appeals originating from Primary Courts. If it was applicable then he said he thought he could appear on behalf of the parties, so long as he holds their power of attorney, under Order 3 Rule 2 of the D Civil Procedure Code which reads:

'(2) The recognized agents of parties by whom such appearances, applications and acts may be made or done are:

(a) persons holding powers - of - attorney, authorizing them to make and do such E appearance, applications and acts on behalf of such parties'.

Now I am starting to solve the jigsaw puzzle as I can now imagine where the public F writer derived the title of 'recognised agent' which he is indiscriminately using. It is from the above quoted section.

For one thing let it be made clear that the Civil Procedure Code Act No. 49 of 1966 does not apply to the High Court when hearing appeals originating from Primary Courts. The Act No. 49 of 1966 applies to the High Court, R.M.'s Court and District Court G when they exercise

original civil jurisdiction and also applies when the High Court hears appeals originating from the District Court or R.M.'s Court. So the public writer is wrong to assume that the Civil Procedure Code is of universal application by the High Court. H

Even where the Civil Procedure Code is applicable it is doubtful if Order 3 Rule 2 would cover persons like the public writer who makes his living or makes it a profession to appear in court on behalf of the parties. That is why Order 3 Rule 1 state that: I

Any appearance by a party in court, may be made by his recognised agent, except where otherwise expressly provided by any law for

the time being in force. A

It is submitted that appearance by a recognised agent who works for gain by dint of that agency is expressly prohibited by s. 41(1) of the Advocates Ordinance Cap. 341 which reads: B

'No unqualified person shall act as an advocate or agent for suitors or defend any action, suit or other proceeding in the name of any other person, in any court of civil or criminal jurisdiction or act as an advocate in any cause or matter, civil or criminal'. C

And those who violate such provision are liable for prosecution under s. 41(2) of the Advocates Ordinance.

In the same breath s. 70 of the Advocates Ordinance cannot come to the rescue of public writers either, for the reasons to be given hereunder. That section reads: D

'Nothing in this Ordinance shall prejudice or affect:

(a) the provisions of any other law empowering any person not being an advocate, to conduct, defend or otherwise act in relation to any proceedings'. E

My understanding of this section (if you assign some meaning to the preceding section of s. 41) is that representation on behalf of the parties is not prohibited altogether but permitted in certain circumstances only and these are firstly as given under s. 29 of M.C.A. Cap. 537 (now s. 33 of the New Act); and secondly in respect of Civil F Procedure Code where a 'genuine' recognised agent represents a party in a suit and I use the word 'genuine' advisedly as I exclude a professional agent who makes his living by representing clients in court. It is these professional agents that s 41(1) of the Advocates Ordinance had in mind. The long arm of the law should not spare them G under the subsequent sub-section.

It is for the reasons stated that I denied audience to the 'recognised agent' to appear before me. No doubt these public writers provide useful 'secretarial services' to clients and for that I have no quarrel. They should be confined to desk work. They should H leave alone the legal profession, as it is a science for which they have not been trained. Lord Denning that eminent English jurist states in his book, The Road to Justice (1955) p.24:

'The law is a science which requires long study and experience before a man attains I proficiency in it; and the ordinary citizen cannot

properly put his arguments before the judge except with the assistance of a trained lawyer'. A

And that is not the only admonition we have on the subject. We read in Boswell, Life of Johnson Vol. 5 pp. 28-29; also quoted in Sconavala on 'Advocacy' 2nd Ed. at p. 921 that: B

'As it rarely happens that a man is fit to plead his own cause, lawyers are a class of the community, who by study and experience, have acquired the art and power of arranging evidence and of applying to the points at issue that the law has to settle. A lawyer is to do for C his client all his client might fairly do for himself, if he could. If by superiority of attention, of knowledge, of skill and a better method of communication, he has advantage to which he is entitled'. D

It is therefore wrong to regard the legal profession as for dishonest people as that English novelist Jonathan Swift had once in light mood commented:

'Lawyers are a society of men ... bred up from their youth in the art of proving by words, E multiplied for the purpose ... and a jargon of their own that no other mortal can understand that white is black and black is white according as they are paid'.

It is only hoped that those engaged in the crusade to soil the legal profession in one way F or the other will desist.

Fortunately in the appeal at hand the appellant was personally served with notice of date of hearing. He failed to appear and the appeal was heard in his absence. Concerning the merits of this appeal the appellant is crossing swords with the administrator of the G deceased's estate the respondent Cosmas Raphael, that he distributed the deceased's estate rather haphazardly. The deceased was the father of the appellant and appellant is the principal heir. However I note that most of the points raised are devoid of merit as they were adequately disposed of by either the trial court or the District Court. H

Perhaps the only point of significance is whether the courts below were right to hold that the child Kashangaki was legitimate and therefore entitled to a share of inheritance form the estate of their deceased father. The appellant concedes that Kashangaki's mother was married to the deceased and were cohabiting together. But he says that I Kashangaki was born seven months after his father's death and so he cannot be

legitimate - he is 'mwana wa bisisi'. Well I cannot agree. According to para 140 of A Cory & Hartnoll on Haya Customary Law 'Children born in wedlock belong under all circumstances to their father and are his heirs'. And s. 175 of the Customary Law Declaration GN. 279/63 is to the same effect. However under the rules of evidence, the period of wedlock includes a period of 280 days after the death of the husband. So B the position is such that where a child is born during wedlock or during 280 days after death of the husband, there is a rebuttable presumption that such child is legitimate. In this case no evidence was adduced in rebuttal. So obviously the child Kashangaki is legitimate and is entitled to a share of inheritance. C

I note from the court record that both courts below ordered that appellant be given the keys of the motor-car and garage and that he could look after the shamba of his brother John Peter if he

wanted to. The complaints in respect of those matters are therefore unfounded and are accordingly dismissed. About a room that had been used by Rose, D appellant says it has not been handed over to him. But this is a completely new matter that had not been raised in both courts below, and so it cannot be a subject-matter of adjudication at this late stage.

Both courts below ordered that the motor-car be sold and the proceeds be distributed among the heirs as directed by the will. In the memo of appeal the appellant complains E as to why the motor-car has to be sold. But that is in accordance with the 'WILL'. If he and his full brothers want to retain the motor-car then let the matter revert to the family council for change of decision to see if the female heir members and Kashangaki can be compensated with some money by those who want to retain the vehicle. F Otherwise the order of sale will stand.

That disposes of all the main points of appeal raised. In substance the appeal has failed. I accordingly dismiss it with costs.

G Appeal dismissed.

1983 TLR p354

A

[zRPz]BUNZARI MPIGUZI v LUMWECHA MASHILI 1983 TLR 354 (HC)

Court High Court of Tanzania - Mwanza

Judge Katiti J

October 14, 1985

(PC) CIVIL APPEAL 207 OF 1982

Flynote

Land Law - Land allocation - Village Council allocated land - Whether Council has such B power - S. 195 Local Government (District Authorities) Act 1982.

Constitutional Law - Village Council reallocates land - Destruction of crops belonging to former user - Whether user entitled to compensation from the Council - Fourth C Constitutional Amendment 1984.

-Headnote

The village Council of Kijuka village allocated land which was already occupied and used by the respondent to one Maduka s/o Mahushi. The latter destroyed crops which D had been planted by the former and planted his own crops on the land. The respondent sued the appellant in his capacity as chairman of the village council for compensation for the destruction of his crop.

Held: (i) The new allocatee was entitled to uproot the crops he thought were not useful E to him; it was the Village Council which caused the destruction of the respondent's crops;

(ii) section 24 of the Fourth Constitutional Amendment Act 1984 unequivocally provides that nobody should be deprived of his property contrary to law and without F compensation commensurate to the value of such property if such deprivation is necessary.

Case Information

Appeal dismissed.

No cases referred to. G

[zJDz]Judgment

Katiti, J.: Lumwecha Mashili, hence to be referred to as the respondent, filed an action in Kasenyi Primary Court Sengerema, against Bunzari Mpiguze, hence the appellant, in his capacity as the chairman of Kijuka village, claiming Shs. 1,000/= the alleged value of H the crops, that were allegedly destroyed, as a result of the re-allocation of the same land he had hitherto been cultivating to one Maduka s/o Mahushi, who uprooted the same and planted his own crops. The Primary Court gave verdict against the respondent, arguing that after all, the appellant was not personally involved in the I uprooting of the said crops. The respondent, dissatisfied, appealed to the District Court which

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KATITI J

held that since it was the village authority which did allocate the land knowing fully well A that the same land had been under use by the respondent, it must be held liable for compensation for crops damaged as a result thereof. The District Court upheld the respondent's claim and hence this appeal.

In the direction for disposal of this appeal, I shall first go by the undisputed and the B unchallenged. In the year 1980, DW.3 Maduka s/o Mahushi approached the village Council of Kijuka village for allocation of land for use and continued agricultural purposes. The Village Council dutifully obliged, and allocated a piece of land to DW.3. Maduka s/o Mahushi who began clearing and cultivating the same. The respondent had C hitherto been using the same said piece of land. The respondent, upon discovering what DW.3 Maduka s/o Mahushi was doing, became angry alleging that his crops had been uprooted and destroyed by the donee of the same land, and so sought Shs. 1,000/= as compensation for the same from the Village Council that allocated the same. D Having studied the record, it does appear that while the foundation of the claim is clear cut, the defence does seem to admit to having allocated the same land to DW.3 although claiming at the same time that DW.3 was not allowed to uproot the respondent's crops. And yet in the memo of appeal, the appellant comes up with a surprise, averring that the land allocated was empty land. To avoid narrowing my view E of the case, and with the uncontrovertible fact that the same said piece of land was allocated to DW.3, I shall allow myself to entertain five broad issues namely:

(1) Whether the piece of land had hitherto been under use by the respondent. F

(2) Whether the same piece of land had been planted with crops.

(3) Whether upon allocation of the same to DW.3, such crops were uprooted, or otherwise destroyed and,

(4) Whether the Village Government is liable to pay the compensation claimed. G

(5) If issue (4) is positive what reliefs is the respondent entitled to, if at all? I shall deal with the above issues seriatim. The first issue does on the record qualify for a positive and affirmative answer without qualification, for apart from the H generality of the evidence by the respondent, the appellant, whether unwittingly or because of desire to tell the truth, does admit that not only had the respondent hitherto and before been using the said shamba, but also that

the said shamba had been planted with potatoes and cassava at the time of the I allocation of the same to DW.3, in as few words as follows:

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"Maduka Mahushi aling'oa viazi na mihogo yako kwa nguvu zake tu bila kibali changu A wala Kamati ya Ugawaji".

From the above, I would prefer not to beat about the bush in the direction of answering issue No. 1 and No. 2, for it does unequivocally appear that when the re-allocation of this piece of shamba to DW. 3 by the Village Council was done, the appellant and B associates well knew that the respondent had been using this land and had by then and currently planted potatoes and cassava. It does appear to me from the above that the affirmative answers in so far as issues (1) and (2) are concerned are as natural as are day and night. The appellant cannot be now heard to say that the land was empty. C

Whether the potatoes and cassava crops were destroyed does quickly then arise. The answer is not difficult to come by. I shall not go by the evidence of the respondent personally, which in any case is that the same crops were destroyed, for that apart, D P.W.2 Lubinza s/o Kiyeji ardently and succinctly says and I quote:

"Maduka Mahushi aling'oa mihogo ya mdai na akapanda mihogo yake". E

It could and may easily be observed that this excerpt from the evidence of PW. 2, does not in any way differ from what the appellant said in the excerpt I have above associated with him. From the above I find myself treading on a road and I consider it very safe to conclude that indeed the respondent's crops were uprooted and destroyed by DW.3, F the donee or allocatee of the same land or shamba. The third issue does therefore qualify for an affirmative answer, which is hereby accordingly accorded.

The respondent charges the Village/Chairman with liability to compensate him Shs. 1,000/= for the crop destruction - and hence the issue whether the Village Government, whose Chairman is now its representative, is liable to pay such compensation. In G attempts to solve this, I feel obliged to make concessions about the legal reality that obtained then and is now obtaining. Under the Villages and Ujamaa Villages (Reg. Desg. and adm.) Act No. 21 of 1975, in particular under the provisions of section 12 of H the said Act, the Village Council in allocating land was exercising its legal executive powers within the perimeters and boundaries of its Village. So that it is an undisputable legal position that land allocation to Villagers in this case fell within the bounds of such executive powers. As of now although the Villages and Ujamaa Villagers (Registration, I Designation and Administration) Act 1975 under which the Village allocated the land has been repealed by section 195 of the Local

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KATITI J

Government (District Authorities) Act No. 1982, the provisions of Section 12 of the A Villages and Ujamaa Villages (Registration, designation and administration) Act 1975, have been re-enacted with little and in-consequential variations under section 142 of the Local Government

(District Authorities) Act 1982 - retaining and maintaining the supreme executive powers of the Village Council. B

Now to return to the relevant point, when the Village Council of Kijuka Village was allocating the land to Maduka s/o Mahushi, it was exercising powers legally conferred upon it by law. That may be fine. But the Village Council allocated land that was already in use by the respondent, who as it has above been shown, had already invested his sweat therein. And of course, Maduka s/o Mahushi, DW.3 having been allocated land C for agricultural purposes, it was not for him to begin constituting a commission of inquiry to establish who the owner of the land so allocated could be. He was I think entitled to presume that the Village Council knew better that the land in question had incumbent claimant or not. And once he was in occupation the said Maduka Mahushi D DW.3 was entitled to make use of the land so allocated in the fashion and manner consistent with land use. He was entitled to up-root crops he thought were not useful to him and this he did. From the above I would confidently conclude, that causatively it was the Village Council that led to the destruction of the respondent's crops. E

Was the respondent to be compensated and by whom is the fourth issue. This question I dare say is only rhetorically posed, for our jurisprudence does tenderly nurse the concept that "all men have a right to receive" a just return for their labours "or a just F compensation for labour rendered". See the Union Constitution of Tanzania - Act 43/1975 then, - See also the case of Laiton Kingala v Musa Bariti [1975] L.R.T. No. 40. And I think it is not irrelevant to add, that now vide the provision of Section 24 of the Fourth Constitutional Amendment Act 1984, it is articulated with emphasis and G unequivocally that nobody should be deprived of his property contrary to law and without payment of compensation commensurate to the value of such property if such deprivation is necessary. Although the Fourth Constitutional amendment Act 1984, is a H recent arrival, the concept contained therein, is as above shown not as recent an arrival as the Fourth Constitutional Amendment. The Village Council, it is my conclusion, having deprived the respondent of his shamba, and since admittedly the respondent had invested his sweat and labour therein, the Village Council that causatively occasioned the destruction of crops, has to compensate the respondent. As the quantum of compensation has not been contested the same amount is allowed. I

1983 TLR p3587

The appeal is dismissed with costs. A

Appeal dismissed.

1983 TLR p358

B

[zRPz]MBARAKA WILLIAM v ADAMU KISSUTE AND ANOTHER 1983 TLR 358 (HC)

Court High Court of Tanzania - Mwanza

Judge Mushi J

July 27, 1984 C

CIVIL APPEAL 42 OF 1981

Flynote

Torts - Malicious prosecution - Honest belief - Effect of.

Torts - Damages - Assessment - Grounds for interference by appellate court. D

-Headnote

The appellant was successfully sued for malicious prosecution by the two respondents. The case arose out of a report by the appellant to the police that the respondents had threatened to kill him which is an offence under section 89(2) of the Penal Code. As a E result of this report the respondents were arrested and charged but were set free. In a suit for malicious prosecution the respondents were awarded Shs. 10,000/=. On appeal to the High Court,

Held: (i) In a case of malicious prosecution the most important consideration to be made F is whether there was an honest belief in the words or report which formed the basis for the malicious prosecution;

(ii) in order for an appellate court to interfere with an award of damages by a lower court it must be shown that the trial magistrate acted on wrong principles or that G the amount was too excessive in the circumstances.

Case Information

Appeal dismissed.

No case referred to. H

[zJDz]Judgment

Mushi, J.: The appellant, Mbaraka William was successfully sued for malicious prosecution by the two respondents, Adamu Kissute who shall be referred to as first respondent and Dickson Okulu who shall be referred to as second respondent. The I appellant was ordered to pay Shs. 5,000/= to each of the respondent as general

damages. The appellant was not satisfied with the decision and he has appealed to this A court. In the District Court, the respondents had claimed that the appellant had falsely and maliciously reported to the Police Musoma that the respondents together had threatened to kill him which is an offence punishable under Section 89(2) of the Penal Code. They B further claimed that as result of the false report, the police arrested and charged the respondents in Musoma Urban Primary Court in Criminal Case No. 130/79 but the respondents were acquitted. The respondents claimed that by reason of the appellant's act, they were seriously and gravely injured in their reputation, credit and character and have suffered pain of body and mind and have been brought to public scandal, odium C and contempt. As a result, the respondents claimed Shs. 19,000/= as general damages. The trial magistrate found that the report which was made to the police by the appellant was without reasonable and probable cause. The respondents were awarded a total of Shs. 10,000/= as general damages. D

The appellant's memorandum of appeal contain six grounds but apart from ground number six which refers to the amount of damages, I consider grounds number three and five to adequately cover the points or points in dispute. I reproduce here grounds No. 3 and 5 which read: E

"Ground No. 3 - That the applicant's complaint or report to the Police was made honestly and in a good faith and without any malice. Therefore learned Magistrate erred in finding that the F report of the applicant to the Police was defamatory of the respondents and that the occasion was not privileged and that the report was motivated by some indirect and malicious intent. G

"Ground No. 5 - That the respondents were arrested put in the Police lock-up, and later charged by the Police before the Musoma Urban Court while they were executing their normal duties to detect crimes as testified by one of the plaintiffs/respondents witness one Lazaro Milobo (PW 2)". H

It is not in dispute that the appellant made a report to the police to the effect that the respondents were threatening to kill the appellant.

It is also not disputed that the police after receiving the report, arrested the respondents and charged them with the offence of Abusive language and brawling and threatening I violence.

1983 TLR p360

MUSHI J

It is also not disputed that the respondents were acquitted after a full trial. A

The law on this issue is as stated on page 219 and 218 of Gatley on Libel and Slander sixth edition. On page 219 it states:

"It is a settled rule or principle of law that where an individual gives information or makes a B statement to an officer of the law, whose duty is to detect and prosecute criminals, to the effect that someone has committed a crime, such information or statement has the protection of privilege. This is so in the best interests of society, and the repression of crime could not C otherwise be enforced".

And on page 218 it says:

"When it comes to the knowledge of anyone that a crime has been committed, a duty is laid on D that person, as a citizen of the country, to state to the authorities what he knows respecting the commission of the crime, and if he states only what he knows and honestly believes, (emphasis is mine) he cannot be subjected to an action of damages merely because it turns out that the person as to whom he has given information is, after all, not guilty of the crime" E

In this case the most important point for consideration is whether the appellant honestly believed that the respondents were planning and uttering threats to kill him. An answer to this can only be ascertained from the evidence and the circumstances surrounding the F whole case. Now under what circumstances did the appellant report the matter of the alleged threats to kill to the police? The appellant's statement as to how he came to report the matter is contained in his short evidence in which he said and I quote: G

"I remember on 22/2/79 at about 2.00 a.m. the plaintiff came to my house, he made arrangements with one Mgine who opened the door. He said Mgine had earlier informed me that the plaintiffs were intending to kill me because I had instituted a case against them where H I was claiming a large sum of money. By this the partnership business was found running into problems and there was a case pending in court. They talked with the said Mgine for quite

long but their plan was foiled when they heard people coming to the mosque. The following day I got the whole story from the said Mgine. The following day I reported the matter I to the police and the plaintiffs were arrested and charged".

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MUSHI J

According to P.W. 1 - Lazaro who was the police officer to whom the appellant A reported, the report was made on 22/2/79 and the respondents were arrested and charged on 23/2/79. From the time lapse, it appears that the police did not conduct its own investigations into the allegations. The police must have taken the appellant's word and trusted that it was true and prosecuted the respondents. The police were entitled to B act on the word of the appellant as they would have no cause to think that the report was false and actuated by malice against the respondents. This was particularly so because the alleged threat was made to the appellant himself.

From the evidence, the appellant claimed that the respondents went to the premises C where he lived and had intended to harm him had it not been for the people who were going to mosque for prayers. According to the appellant the respondents had made arrangements with one Mama Mgine and that it was this Mama Mgine who informed the appellant about the whole plan. This is to say that this information that the respondents D had uttered threats that they would kill the appellant, was not from the appellant's own knowledge. From the evidence Mgine was the source of the information. She was the one who talked and with whom the respondents had planned to kill the appellant. Her E evidence was most important. The appellant could not expect his evidence to have any base without the evidence of Mgine who, according to him was the source of the information. Failure to call this woman as a witness, clearly shows that what the appellant was saying was mere fabrication just to get the respondents into unnecessary F trouble. It is on the evidence of Mgine that the court could decide whether the appellant honestly believed the truth of what he was told and whether his honest belief was founded on some sort of reasonable basis. For if the appellant's belief is so groundless, the court may come to the conclusion that the appellant did not honestly believe the G statement to be true. In this case the appellant has to show that he honestly believed both what he told the police and by reporting to the police what in all probability appear to be mere fabrication, he was actuated by nothing else except malice against the respondents. The appellant had no reasonable or probable cause for making the report. H As the appellant himself stated, he had filed a suit against the respondents concerning some partnership property. They were not on good terms. It is quite possible that the appellant did not wish the respondents to continue running the partnership business. It can not therefore be said that the learned trial magistrate was wrong in finding that the I appellant's complaint to the police was baseless and that it was maliciously made. The

1983 TLR p362

respondents were entitled to damages. As to the complaint that the amount of Shs. A 15,000/= awarded to both respondents is excessive, the appellant has not shown that the learned trial

magistrate acted on wrong principles or indeed the amount is too excessive taking into account the whole claim. I would dismiss the appeal with costs to the respondents.

B Appeal dismissed.

1983 TLR p362

C

[zRPz]MATIKU BWANA v MATIKU KWIKUBYA AND ANOTHER 1983 TLR 362 (HC)

Court High Court of Tanzania - Mwanza
Judge Mushi J

July 16, 1984
CIVIL APPEAL 16 OF 1982 D
Flynote
Torts - Physical injury - Fracture - Assessment of damages -Grounds for interference by an appellate court.
-Headnote
The appellant had suffered a simple fracture of the ulna of his left hand as a result of an E assault by the respondent. He successfully instituted civil proceedings and was awarded Shs. 2,000/= as general damages. He appealed to the High Court on the ground that the amount was inadequate.
Held: (i) An appellate court will normally not interfere with a trial court's assessment of F damages unless it is shown that the trial court acted on wrong principles such as not taking relevant facts into account or taking irrelevant facts into account resulting in an unjust decision.
Case Information
Appeal dismissed. G
Case referred to:

1. Mantage and Another v Mwita [1971] H.C.D. n. 110.

[zJDz]Judgment
Mushi, J.: The appellant, Matiku Bwana, successfully instituted proceedings in the H District Court for damages against the respondents, Matiku Kwikubya 1st respondent, and Mubaraka Essore - 2nd respondent and was awarded Shs. 2,000/= as damages. The appellant had asked for Shs. 8,000/=. He is appealing against the award of Shs. 2,000/= on the grounds it appears, that it is inadequate. I
Reading the memorandum of appeal carefully I find grounds No. 1
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MUSHI J
and 8 to cover the issues raised and for convenience I reproduce grounds No. 1 and 8 A here:

"1. That the learned trial magistrate erred in assessing the compensation to be awarded to the appellant.

2. That award of compensation of Shs. 2,000/= by the lower court is a little amount in B regard to the permanent incapacity of the appellant's broken hand which he can no longer use in his daily cultivation on which he depends".

The claim arose from an assault on the appellant which resulted in a simple fracture of C the ulna of the left hand. The appellant also suffered some other pains as he says he was also struck with a stick on the back. The appellant therefore filed a suit against the respondents for general damages for permanent incapacity of the left hand; injuries in the chest; pain and loss of blood. For all of them he claimed Shs. 8,000/=. I will dispose of D ground No. 8 which alleges permanent incapacity of the appellants hand. There is no evidence at all to support the allegation that the appellant suffered permanent incapacity and that the hand can no longer be used in shamba work. The appellant in his evidence did not at all state that he could never use his hand again. He simply said that he could E not perform heavy duties. Apart from the general allegation that he could not perform heavy duties, there was no other evidence medical or otherwise from which such inference could have been inferred. Medical evidence could only be gathered from the criminal record in which the respondents had been charged and convicted. The P.F. 3 F shows that the appellant suffered a simple fracture and that he was put on a P.O.P. for eight weeks. In the absence of any other evidence to the contrary, it is only fair to assume the appellant's hand has properly healed. Ground No. 8 therefore fails in its entirety as there was no evidence on record to support it. G

I now turn to the ground No. 1 that the learned trial magistrate erred in assessing the amount of damages. This allegation must be viewed against the background on the part of the appellant that he was under wrong impression that he should be seen to have suffered permanent incapacity a fact which I have already dealt with. The assessment H must be based on a simple fracture which the appellant suffered. The question is whether on the facts of this case, it can be said that the award of Shs. 2,000/= is manifestly inadequate or that the award was based on wrong principles.

This court will not normally interfere with the trial court's assessment of damages unless it I is shown that the trial court acted on wrong principles such as not taking relevant facts into account or took irrelevant facts into

account resulting into reaching an unjust decision. Or if the court acted according to the A principles taking into account all the relevant factors, all in all the award is manifestly inadequate. The appellant has not shown in any way that the trial magistrate acted on wrong principles nor is there any evidence that the award is manifestly inadequate. There is nothing on the record either which shows the existence of any facts which B establish the breach of the two principles above.

It is the law that damages must be awarded to adequately cover loss directly arising from the act complained of and reasonably foreseeable. In this case, the facts were simple. The appellant was assaulted during which he sustained a simple fracture of the left hand C which healed after 8 weeks. There is no evidence that the appellant suffered any special damage or loss as a result of

sustaining the fracture, other than the fact that the appellant suffered pain and suffering as a result of fractured arm.

The appellant stated that since the fracture of the arm he has been receiving treatment at the hospital as an out patient. There was no documentary evidence to support this D allegation and even if there was, still a further question would be asked as to whether the treatment was directly related to the injuries caused by the act of the respondents. The trial magistrate was therefore restricted in his assessment of damages to the sufferings E and pain resulting from the fractured hand. In his considered view taking all factors into consideration Shs. 2,000/= would adequately compensate the appellant. I found no ground to fault him. In the case of Mantage and Chacha v Mwita, [1971] H.C.D. 110, the appellants were ordered to pay Shs. 3,500/= as general damages for assault F resulting in fracture of the arm of the respondent. On appeal it was found that the respondent's hand had fully healed although the alignment was affected. It was also not established that the respondent could not make use of his hand permanently. Neither did other blows leave any permanent defects on the body. The High Court under the circumstances found that the amount of Shs. 3,500/= as general damages was excessive G and reduced it to Shs. 1,600/=. While each case must be taken on its facts and circumstances the facts of the above quoted case and the one on appeal are not different. The respondent had been prosecuted and sentenced to eight months each and ordered compensation of Shs. 200/= each which make total compensation to Shs. H 2,400/=. It is on record that the parties in this appeal are related. From what I have stated above, I am not satisfied that the trial magistrate erred in assessing the amount of damages. The award was reasonable in the circumstances. The appeal is dismissed. Each party to bear his costs of this appeal.

I Appeal dismissed.

1983 TLR p365

A

[zRPz]ERIZEUS RUTAKUBWA v JASON ANGERO 1983 TLR 365 (HC)

Court High Court of Tanzania - Bukoba

Judge Mwalusanya J

September 28, 1985

(PC) CIVIL APPEAL 183 OF 1983

Flynote

Limitation - Redemption of land held under customary law - Sale made 10 years before B institution of suit - Whether time barred - Customary Law (Limitation of Proceedings) Rules G.N. 311 of 1964 and s. 50 Law of Limitation Act.

-Headnote

The respondent had filed a suit for redemption of clan land against the appellant in the C Primary Court. It was ruled that he was time barred as the sale by his uncle had been concluded in 1970 while he brought his action in 1980. The Primary Court proceeded on the assumption

that the limitation period for the redemption of land held under customary law was three months. On appeal to the District Court, however, the D respondent was held not to have been time barred since the limitation period was 12 years.

Held: (i) The customary law period of limitation for redeeming clan shambas is 12 years as given by Customary Law (Limitation of Proceedings) Rules as applied by the Law of E Limitation Act 1971;

(ii) (obiter): Policy considerations cannot be used to override clear provisions of the law. It is for the legislature to amend the law if it is found wanting. The courts have to administer the law as they find it. F

Case Information

Appeal dismissed.

Cases referred to:

1. Luttataza Biteya v Haji Abdu Selemani [1975] L.R.T. n. 43. G
2. Felician Evarist v Domitina Kaijage & Anor., Mwanza (PC) Civ App. No. 98/1982 (unreported).
3. Adolph Lwegoshola v Domician Mulashani & Anor., Mwanza (P.C.) Civ App. No. 124 of 1982 (unreported).
4. Evarister v Apolinary Eustad [1968] H.C.D. n. 412. H
5. Mzee s/o Madirisha v Rwamturaki Mulagina; Mwanza (PC) Civ Appl. NO. 96 of 1970 (unreported).
6. Fulgence Seif v Raphael Rwabwera [1978] L.R.T. n. 46.
7. Stephania Byabato v Francia Lwehabura & Anor. [1974] L.R.T. n. 25. I

1983 TLR p366

MWALUSANYA J

8. Abel Rwebogora v Raphael Mukaja [1970] H.C.D. n. 100. A

J. Rweyemamu for appellant.

[zJDz]Judgment

Mwalusanya, J.: The respondent Jason s/o Angero lost in the suit he filed at Nshamba B Primary Court which was an action for redemption of clan land. However on appeal to the Muleba District Court he was successful and he was allowed to redeem the clan land on payment of the purchase price of Shs. 2,500/=. It is against that finding that appellant Erizeus Rutakubwa has appealed to this court and advocate Mr. Rweyemamu assisted him. C

It is common ground that the appellant Erizeus Rutakubwa bought the clan land in dispute on 29/9/1970 form the respondent's uncle Brasio s/o Kashongole who is now dead. When the sale took place the respondent was away in Karagwe District preaching the Word of God. The respondent returned home in June 1979. It is said D that as soon as he heard of the sale he referred the matter to the Arbitration Tribunal on 10/6/1980 where he was successful. The Tribunal allowed him to redeem the land on payment of the purchase price of Shs. 2.500/= and an additional sum of Shs. 2,500/=.

There was also a dispute at the trial concerning the exact amount of purchase price that E had been paid. Respondent produced at the trial the relevant sale agreement (Exhibit A) showing

Shs. 2,500/= as the purchase price. However the purchaser (appellant) produced another sale agreement (Exhibit C) where it is indicated that the purchase price was Shs. 15,000/=. F
The Primary Court held that the respondent could not redeem the clan land as he was time - barred. It held that the limitation period as per para 568 of Cory and Hartnoll on Haya Customary Law was three months since the intending redeemer knew of the sale. And since the respondent knew of the sale when he returned home in June 1979, when G he complained to the Arbitration Tribunal on 10/6/1980 he was late by nine months. The case of Luttataza Biteya v Haji Abdul Selemani: [1975] L.R.T. n. 43 was cited by the Primary Court as authority for the proposition that the limitation period is three months.
The District Court held that the suit for the redemption of clan land was not time - barred H as the limitation period is 12 years as per Customary Law (Limitation of Proceedings) Rules G.N. 311 of 1964 as saved by the Law of Limitation Act No. 10 of 1971. As regards the two sale agreements the District Court held that Exhibit C. for Shs. 15,000/= was a forgery as it appeared tampered with. So Exhibit A for Shs. 2,500/= was I accepted as the genuine purchase price.
1983 TLR p367
MWALUSANYA J
The respondent has argued that even if we take the limitation period to be three months, A he was not late as he promptly complained to the Arbitration Tribunal on 10/6/80 as soon as he heard of the sale. However the court record clearly shows that respondent testified that he knew of the sale as soon as he got hold of the will and the attached sale agreement when his uncle Brasio died in June 1979. So by his own admission B respondent knew of the sale in June 1979; and so he cannot be heard to say that he heard of the sale just before he complained to the Arbitration Tribunal in June 1980. Definitely if we take the three months period as the correct limitation period, the respondent was clearly time-barred.
Now which is the correct limitation period for redemption of clan land? Recently in two C cases that is in Mwanza (PC) Civil Appeal No. 98/1982 of Felician Evarista v Domitina Kaijage and Anor (unreported) and Mwanza (PC) Civil Appeal No. 124 of 1982 of Adolph Lwegoshola v Domician Mulashani and Anor (unreported), I had occasion to comment on the raging controversy over the limitation period for redemption D of clan land. However in those two cases I had not the advantage of argument of learned counsel as was the case in this appeal where Mr. Rweyemamu greatly assisted this court by his incisive argument. Foremost counsel assured me that the Tanzania Court of Appeal has yet to resolve the controversy. E
Mr. Rweyemamu and the other protagonists for a three month limitation period generally advance two main reasons for their case. Firstly it is on policy considerations. It is argued that a 12 year limitation period would be catastrophic. They say it would bring economic stagnation for buyers of clan land as the buyers for some 12 years would sit F back without developing the land for fear of it being redeemed. And it is argued that some unscrupulous clever relatives of vendors would sit back for some 12 years to see development on the purchased land and then proceed to redeem it as clan land. And it is said that in such cases claims of compensation for incomplete improvements would be G for colossal sums indeed and very difficult to resolve as there would be very extensive developments. Perhaps the best adherent to this theory Mfalila J.

put the matter with admirable clarity in Luttataza Biteya v Haji Abdul Sulemani: [1975] L.R.T. n. 43 when he said: H

'To give security of tenure to buyers of clan shambas and facilitate the development of agricultural land, redemptions will only be allowed if applications to redeem are lodged within three months of the sale. After this period, knowledge of the sale will readily be imputed to the intending redeemer, thereby effectively protecting I

buyers of clan shambas from possible fraudulent speculative clan members'. A

However my short answer to this point is that however laudable those sentiments are, I am of the settled view that policy considerations cannot be used to override clear provisions of the law. It is for the legislature to amend the law if it is found wanting. As B ministers of justice we are enjoined to administer the law as we find it. From the discussion below I think the law on this subject is substantially clear.

Yet the protagonists for a three month limitation period have another point in their C armoury. It is argued that the 12 years limitation period was laid down by the court in Everister v Apolinary Eustad [1968] H.C.D. n. 412 (Mustafa J. as he then was) under a false premise of the law. It is said that after all that case dealt with a claim of mortgaged land and not sale of land. Then the protagonists attempt what they consider to be the correct interpretation of Item 6 of Customary Law (Limitation of D Proceedings) Rule G.N. 311 of 1964 which reads:

'Proceedings to recover possession of land or money secure on mortgaged land is 12 years' E

It is argued that the para should be read as referring to a suit to recover possession of land and money both which have been secured on mortgaged land. In other words they say that the paragraph is for suits to recover possession of land which is secured on mortgaged land and for suits for recovery of money secured on mortgaged land. In the F case of Mzee s/o Madirisha v Rwamturaki Mulgina: Mwanza (PC) Civil Appeal No. 95 of 1970 (unreported) but cited in Fulgence Seif v Raphael Rwabwera [1978] L.R.T. n. 46, Mfalila J. stated:

'I am satisfied that while the right to recover mortgaged land the mortgagor is limited to 12 G years; the right to redeem land from strangers by clan members other than the original mortgagor or seller is still subject to the customary law limitation period of three months from the time the clan member became aware of the alienation'. H

However like Mustafa J. in Everister's case (supra) and Kisanga J. (as he then was) in Stephania Byabato v Francia Lwehabura & Anor: [1974] L.R.T. n. 25 I read or interpret Item 6 of G.N. 311 of 1964 differently. In my judgment the paragraph I envisaged two kinds of actions. Firstly as a suit for the recovery of possession of land and

secondly suits for the recovery of money secured on mortgaged land. That would A appear to be the plain or natural meaning of that paragraph on its proper construction. If that is not the correct construction it would be a strange omission indeed to have omitted prescription for

limitation period for claims of land when it is known that land disputes are quite prevalent under every customary law community in our country. And unlike the B Haya Customary Law which prior to 1964 had limitation periods for claims for land, other communities had none until the advent of the 1964 rules. It is absurd I think to suggest that the makers of the 1964 rules had intended to exclude claims for the possession of land from the limitation period prescription. C
It follows therefore that the customary law period of limitation for redeeming clan shambas is 12 years as given by Customary Law (Limitation of Proceedings) Rules G.N. 311 of 1964 as reapplied by s. 50 of the Law of Limitation Act, 1971. And Bramble J. in Abel Rwebogora v Raphael Mukaja: [1970] H.C.D. n. 100 holds the same view. D So the District Court correctly decided that the suit was not time - barred.
As regards the correct purchase price again I agree with the District Court that it is Shs. 2,500/= as shown in the sale agreement Exhibit A. The other sale agreement Exhibit C E was obviously tempered with to read Shs. 15,000/= instead of the original price of Shs. 2,500/=. Moreover, it bore no signatures of witnesses nor that of the buyer. Obviously it was not genuine and it was rightly rejected. So the respondent is allowed to redeem the clan land within three months from today on payment of the purchase price F of Shs.2500/= The appeal is accordingly dismissed with costs.
G Appeal dismissed.
1983 TLR p370
A
[zRPz]YEROMINO ATHANASE v MUKAMULANI BENEDICTO 1983 TLR 370 (HC)

Court High Court of Tanzania - Bukoba
Judge Mwalusanya J

September 28, 1985
(PC) CIVIL APPEAL 162 OF 1982 B
Flynote
Land Law - Clan land - Redemption of - Sale - Whether sale concluded.
Limitation - Redemption of land held under customary law - Sale purported to have been made 5 years prior to action - Whether time barred - Customary Law (Limitation of C Proceedings) Rules G.N. 311 of 1964 and s. 50 Law of Limitation Act No. 10 of 1971.
-Headnote
The appellant alleged that he had bought clan land from one Laurent Mutore Bulaya (deceased), who was the respondent's brother. The respondent successfully sued the D appellant in the Primary Court. She proceeded on the argument that there was no sale, and even if there was one, she should be entitled to redeem the land. The appellant argued that there was sale and that she was time barred for an action for redemption since the limitation period for such suits was 3 months. The District Court agreed with the Primary Court's finding that there was no sale. E

Held: (i) There was no sale;

(ii) even if there was sale, the respondent was not time barred in her action for redemption, the limitation period being 12 years.

(iii) (obiter) Policy considerations should not be used to override clear provisions F of the law; it is for the legislature to amend the law if it is found wanting. The courts have to administer the law as they find it.

Per curiam: the decisions courts deliver are not laws but expositions of the law.

Case Information

Appeal dismissed. G

Cases referred to:

1. Luttataza Biteya v Haji Abdu Sulemani [1975] L.R.T. n. 43.
2. Evarister Martin v Apolinary Eustaad [1968] H.C.D. n. 412. H
3. Mzee s/o Madirisha v Rwamturaki Malagina, Mwanza (PC) Civ Appeal No. 95 of 1970.
4. Fulgence Seif v Raphael Rwabwera [1978] L.R.T. n. 46.
5. Stephania Byabato v Francia Lwehabura & Anor. [1974] L.R.T. 25. I

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6. Abel Rwebogora v Raphael Mukaja [1970] H.C.D. n. 100. A
7. Bi Vierdina Kyabuje v Gregory Kyabuje [1968] H.C.D. n. 499.
8. Swift v Tyson (1842) 16 Pet. 1.

J. Rweyemamu for appellant. B

[zJDz]Judgment

Mwalusanya, J.: This is a dispute over clan land as to whether it had been sold to a stranger the appellant Yeronimo s/o Athanase or not; and if it had been sold whether the respondent Mukaulani d/o Benedicto who is clan member had the right to redeem it or not. The shamba in dispute is worth about Shs. 2,000/=. The Bukondo Primary Court C in a unanimous opinion decided that the respondent's deceased brother Laurent Mutore Bulaya had not sold the disputed piece of land to appellant as claimed and that the sale agreement dated 5/8/1970 purporting to effect the sale was a forgery. The District Court agreed that evidence of sale of the shamba was indeed wanting and so the D appeal was dismissed. With the help of learned counsel Mr. Rweyemamu the appellant has appealed to this court challenging the decision of the two courts below.

After a thorough review of the evidence on record, I am unable to resist the force of the E concurrent finding of the two courts below that there was no sale of that clan land. Firstly, no near relative was informed of the sale including the respondent. Although Richard claimed at the District Court that he was a clan member of the Muheta clan yet even if we were to so concede, he cannot be a near relative despite the wide definition given in para 557 of Cory and Hartnoll as he himself conceded that he could not F vouchsafe that he was a descendant of a common paternal ancestor in the male line. Secondly, as the trial court observed, the sale agreement Exhibit A appears tampered with, the signature of the deceased appears retraced.

Thirdly, there was a contradiction between the appellant's testimony and that of his key witness Richard concerning the G amount of purchase price paid. Richard said Shs. 1,000/= only was paid while the appellant insisted that he paid Shs. 6,150/=. Fourthly if it is true that the appellant bought the land in question on 5/8/1970 why then did he not occupy it instead he waited till the death of the alleged vendor Laurent in 1977. Fifthly, after sale according to para 935 of Cory and Hartnoll on Haya Customary Law, boundaries are to be marked. But H in this case when the Primary Court visited the disputed piece of shamba on 12/6/1981 they could not see any boundary marks and the appellant failed to show the same despite the gallant efforts he made. Indeed the evidence in favour of the respondent was overwhelming. No I

reasonable tribunal could have resisted the conclusion that there was no sale. A

At the District Court additional evidence was adduced apparently in last ditch efforts to establish that there was a sale. The appellant produced a new sale agreement Exhibit B which purported to show that Laurent sold the disputed piece of shamba to appellant in B 1975 for Shs. 1,000/=. He also produced a specimen signature of Laurent as Exhibit C from a document of 1960 for comparison with the disputed signatures in Exhibit A and B. The District Court ignored this new document of sale as useless and I cannot say it was wrong. The change in strategy by the appellant was indeed mean and redolent of a lost battle if not the whole war. C

Assuming I am wrong such that there was a sale indeed, is respondent entitled to redeem the clan shamba? Counsel for the appellant Mr. Rweyemamu submitted that the respondent could not redeem the clan land as she was time-barred. He said that as per D para 568 of Cory and Hartnoll a redemption claim has to be filed within three months after hearing of the sale. He said that as the sale was in 1975 as per Exhibit B and as this case was filed in 1980 then the action was out of time for some five years. It was counsel's submission that the respondent must have known of the sale in 1975 or soon E thereafter as she was there in the village.

However according to the respondent she knew of the sale for the first time at the funeral of her deceased brother Laurent in 1977 when the appellant disclosed the alleged sale documents. The matter was immediately referred to the Arbitration Tribunal which F appeared to decide in favour of the appellant and so the matter eventually ended in court.

On the evidence on record I find that there is no basis for the contention by the appellants' counsel Mr. Rweyemamu that the respondent knew of the sale in 1975. No evidence whatsoever was led to establish that the respondent knew of the sale earlier G than the time of the funeral. After all the appellant had not entered and occupied the shamba in question and so it cannot be said that she must have been alerted by the appearance of a trespasser to their clan land. So in my judgment the respondent was not time-barred. She took action within three months after she knew of the sale by referring the matter to the Arbitration Tribunal. H

Counsel for appellant took occasion to submit that the period of limitation for redemption of clan land was three months and not 12 years as some authorities tend to suggest. He gave two reasons for his stand. First, that if the 12 years limitation period was adopted it would cause

stagnation of economic development as buyers would not I develop and invest in the land they bought during the 12 years for fear of it being

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MWALUSANYA J

redeemed. And he also said that speculative relatives of vendors would wait till the land A is developed then come up with a redemption claim. And so he said that, that could not be good law at all. In fact counsel was echoing the sentiments of Mfalila J. in Luttataza Biteya v Haji Abdu Sulemani: [1975] L.R.T. no. 43 where he expressed the view that: B

'To give security of tenure to buyers of clan shambas and facilitate the development of agricultural land, redemptions will only be allowed if applications to redeem are lodged within three months of the sale. After this period, knowledge of the sale will readily be imputed to the intending redeemer, thereby effectively protecting buyers of clan shambas from possible C fraudulent speculative clan members'.

However my short answer to this point is that however laudable those sentiments are, I am unpersuaded that such policy considerations should be used to override clear D provisions of the law. It is for the legislature to amend the law if it is found wanting. As ministers of justice we are enjoined to administer the law as we find it. And it is my considered view that the law on the subject is substantially clean and needs no exotic interpolation. E

Yet the protagonists for the three month limitation period have another string to their bow. They argue that the decision of Evarister Martin v Apolinary Eustad [1968] H.C.D. n. 412 by Mustafa J. (as he then was) does not stand for the proposition that the limitation period for redemption of clan land is 12 years as, they submit, any observation to that effect was merely obiter dicta in that case involved the recovery of mortgaged F land and not redemption or recovery of land per se. They concede that for the recovery of mortgaged land the limitation period is 12 years. The protagonists attempt at what they consider the correct interpretation of Item 6 of Customary Law (Limitations of Proceedings) Rules G.N. 311 of 1964 which reads: G

'Proceedings to recover possession of land or money secure on mortgaged land is 12 years'.

It is argued that the para should be read as referring to a suit to recover possession of H land or money both which have been secured on mortgaged land. In other words the paragraph it is argued concerns two matters: first a suit to recover possession of land secured on mortgaged land and secondly a suit to recover possession of money secured on mortgaged land. In the case of Mzee Madirisha v Rwamturaki Malagina; Mwanza I (PC) Civil Appeal No. 95 of 1970 (unreported) but cited in Fulgence

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Seif v Raphael Rwabwera: [1978] L.R.T. n. 46 Mfalila J. had this to say: A

'I am satisfied that while the right to recover mortgaged land the mortgagor is limited to 12 years: the right to redeem land from strangers by clan members other than the original B mortgagor or sellers is still subject to the customary law limitation period of three months from the time the clan member became aware of the alienation'.

However like Mustafa J. in Everister case (supra) and Kisanga J. (as he then was) in C Stephania Byabato v Francia Lwehabura & Another: [1974] L.R.T. n. 25 I read or interpret Item 6 of G.N. 311/1964 differently. In my judgment I take it that the paragraph envisaged two kinds of actions: firstly a suit to recover possession of land and D secondly a suit to recover possession of money secured on mortgaged land. That would appear to be the plain and natural meaning of that para on its plain construction. If the rules envisaged limitation period for mortgaged land only as claimed, then it would have been a strange omission indeed because land disputes are quite prevalent in our varied customary law communities and no limitation period has been laid down by those E communities except perhaps the Haya Customary law. It is absurd therefore to assign a negative intention to the law makers of 1964 rules that the alleged lacuna in the law was deliberate. In the event the 1964 rules must be taken to have abrogated any earlier law on the subject and thus the 12 year period is the correct limitation period for F redemption of clan land. And Bramble, J. in Abel Rwebogora v Raphael Mukaja: [1970] H.C.D. n. 100 holds the same view.

Counsel for appellant Mr. Rweyemamu further submitted that, as Hamlyn J. pointed out in Bi. Verdiana Kyabuje v Gregory Kyabuje: [1968] H.C.D. n. 499 it is wrong for the G courts to change the law from the three month limitation period for redemption of clan land to a 12 year limitation period. While I associate myself with the views expressed by counsel and the late Judge Hamlyn, however I am unable to concur that the courts have changed the limitation period as contended. It is a truism that the 1964 limitation rules H have been laid down by the legislature under section 65 the Magistrates' Court Act Cap. 537 and later reapplied by the legislature again vide s. 50 of the Law of Limitation Act No. 10 of 1971. The courts are just interpreting the law and it can again be said that the duty and province of the courts is to say what the law is. On my part I heed and I appreciate what that English writer Francis Bacon once said in his Essays of Judicature that:

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'In the ordinary use of language it will hardly be contended that the decisions of courts A constitute laws. They are, at most, only evidence of what the laws are and are not of themselves laws. They are often re-examined, reversed and qualified by the courts themselves, whenever they are found to be either defective or ill - founded or otherwise incorrect'. B

With those observations I entirely agree. I hope that adequately disposes of Mr. Rweyemamu's point as regards the role of the courts.

In the event the appeal is dismissed with costs. C

Appeal dismissed.

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D

[zRPz]THE REPUBLIC EX-PARTE PETER SHIRIMA v KAMATI YA ULINZI NA USALAMA, WILAYA YA SINGIDA,THE AREA COMMISSIONER AND THE ATTORNEY GENERAL 1983 TLR 375 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

December 3, 1981 E
MISCELLANEOUS CRIMINAL CAUSE 18 OF 1981
Flynote
Prerogative writs - Certiorari and Prohibition - Applicant charged with selling goods at a F price higher than the maximum price - Goods confiscated by police - Charges withdrawn - Goods returned to Police and sold - Appeal against order returning goods to Police - Subsequent withdrawal of trading licence and expulsion order on the orders of the Area G Commissioner and Defence Committee - Whether action by Area Commissioner and Defence Committee "judicial".
Prerogative Writs - Certiorari and Prohibition - Withdrawal of licence and order of expulsion H - Certiorari and Prohibition granted against the Officer Commanding District to restrain him from carrying our order of expulsion - Application for further orders against the Area Commissioner and the Defence Committee - Whether latter application competent.
Prerogative writs - Certiorari and Mandamus - Practice and procedure - Application for - I Whether leave necessary.
1983 TLR p376
LUGAKINGIRA J
-Headnote
The applicant had been arrested and charged with selling goods at prices in excess of the A maximum prices set under the Regulation of Prices Act. Some goods were confiscated from his shop and produced as exhibits in the proceedings. Subsequently, the charges were withdrawn and in consequence, the trial magistrate ordered the goods to be restored to the Police. The applicant appealed against this order, but before it was B heard, the Officer Commanding District (OCD) informed him that the goods were to be sold by the police, his trading licence had been revoked and he had to leave Singida town within a specific period.
The applicant then applied for orders of certiorari and prohibition to quash the orders C of the OCD and to restrain him from carrying out the order of expulsion. This application was granted. He later learnt that the OCD was acting on the orders of the Area Commissioner and the District Defence Committee (Kamati ya Ulinzi na Usalama). He then applied for leave to apply for the orders of certiorari and prohibition against the Area Commissioner and the District Defence Committee. D
Held: (i) The practice of seeking leave to apply for prerogative orders has become part of our procedural law by reason of long user;
(ii) the existence of the right to appeal and even the existence of an appeal itself, E is not necessarily a bar to the issuance of prerogative order; the matter is one of judicial discretion to be exercised by the court in the light of the circumstances of each particular case;

(iii) where an appeal has proved ineffective and the requisite grounds exist, the aggrieved party may seek for, and the court would be entitled to grant, relief by way of F prerogative orders;

(iv) (obiter) the applicant should have joined the respondents in the second application with the respondent in the first application once they became known to him by an amendment of the first application;

(v) (obiter) s. 2(2) of the Judicature and Application of Laws Ordinance Cap. 453 requires the court to apply only the substance of English Common Law the G Doctrines of Equity and the Statutes of General Application in force on the 22nd July 1920;

Per Curiam: it is a cause of anxiety that one has to have recourse to obscure rules H which were abandoned in country of origin more than forty years ago; there is urgent need to pay attention to s. 349(2) of the Criminal Procedure Code (S. 291(2) of the Criminal Procedure Act).

Case Information

Application rejected. I

Cases referred to:

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LUGAKINGIRA J

1. Mohamed v Regional C.I.D. Officer Mbeya; Misc. Crim. Cause No. 29 of A 1978 (Mbeya Registry) (unreported).
2. Mwakilasa v The Principal Secretary (Treasury): Misc. Crim. Cause No. 14 of 1978 (Mbeya Registry) (unreported).
3. Makule v The R.P.C., Kilimanjaro: Misc. Civ Appl. No. 87 of 1979 (Arusha Registry) (Unreported). B
4. Lakarau v Town Director Arusha: Misc. Civ Appl. No. 56 of 1979 (Arusha Registry).
5. D.M.T. Ltd. v The Transport Licensing Authority [1959] E.A. 403.
6. Re: Fazal Kassam (Mills) Ltd. [1960] E.A. 1002. C
7. Re: Hirji Transport Service [1961] E.A. 88.
8. Shah Vershi & Co. Ltd. v The Transport Licensing Board [1971] E.A. 289.
9. Re: A.G.'s Application [1958] E.A. 482.

D. Mbezi for the applicants. D

[zJDz]Judgment

Lugakingira, J.: This was an ex parte application for leave to apply for orders of certiorari and prohibition.

The applicant, Peter Shirima, owned and ran a shop in Singida township. On 15th E August, 1981 the police entered the shop and seized a quantity of shop goods. On 25th August the applicant was charged before the District Court of Singida with the offences of selling goods in excess of the maximum prices contrary to sections 20 and 26 of the Regulation of Prices Act, 1973 and hoarding contrary to what were cited as sections F 194 A(c)(i)(ii) and 4 of the Penal Code. I will say nothing about those provisions for their nonexistence or irrelevance is self-evident. The trial commenced on 17th September when some evidence was adduced by the

prosecution and the goods were tendered as exhibits. At the resumed hearing on 18th September the charges were G withdrawn under s. 86(a) of the Criminal Procedure Code. Thereupon the trial magistrate made an order restoring the goods to the police. The applicant appealed against that order in Criminal Appeal No. 100 of 1981 which is due for hearing before this court.

Meanwhile, on 25th September, the applicant was summoned to the police station by H the OCD and told that the goods would be sold. They were duly sold on the next day. The applicant was also informed that his trading licence, which had also been seized, had been cancelled. He was then ordered to dispose of the remaining goods in his shop and to leave Singida town not later than 2nd October, 1981. I

In consequence of these orders and actions the applicant applied

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LUGAKINGIRA J

to this court in Miscellaneous Criminal Cause No. 14 of 1981 for orders of certiorari A and prohibition to quash the orders of the OCD and to restrain him from carrying out the order of expulsion. The application was heard by my brother Maina, J. on 19th October, after leave had been applied for and granted, and orders were made and issued as prayed.

But while the hearing was going on the applicant gathered that the OCD had apparently B acted on orders of the Area Commissioner and the Kamati ya Ulinzi na Usalama, Singida District. He therefore brought the present application for leave to apply for the same orders against the Area Commissioner and the Kamati ya Ulinzi na Usalama. At the hearing of this application I requested Mr. Mbezi, learned counsel for the C applicant, to enlighten me on the following:

(a) Whether it was a legal requirement to seek prior leave to apply for prerogative orders;

(b) Whether the court had jurisdiction to grant such leave considering D

(i) that part of the subject matter appeared to be the subject of Criminal Appeal No. 100 of 1981; and

(ii) that similar orders on the same complaints had already been granted in Miscellaneous Criminal Cause No. 14 of 1981. E

I would now point out that the orders of the court in Miscellaneous Criminal Cause No. 14 of 1981 were duly served on one Akilimali, A.S.P., of Singida Police on 9th F November, 1981.

Regarding (a) Mr. Mbezi conceded that the procedure was not entirely clear. He informed the court, however, that it has been the practice in these matters to adopt the procedure applicable in habeas corpus proceedings. Regarding (b)(i) he said that the G subject of Criminal Appeal No. 100 of 1981 was different: It was there intended to determine the legality of the trial magistrate's order of restoring the goods to the police whereas certiorari was being sought, inter alia, to quash the decision to sell the said goods. And regarding (b)(ii) he submitted that the court had jurisdiction as the H respondents were different. I must confess that I could not on my part find easy answers to these questions. And Mr. Mbezi, on his part, was unable to refer me to any authorities.

I shall now consider these matters beginning with (a) Subsection (1) of s. 349 of the Criminal Procedure Code, provides that the High Court may in the exercise of its I criminal jurisdiction issue any writ which maybe issued by the High Court of Judicature in England. Subsection
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LUGAKINGIRA J
(2) further provides that the High Court may from time to time make rules to regulate the A procedure in cases under the said section. For reasons I cannot think of, no such rules have ever been made. However, there is authority for saying, as Mr. Mbezi did, that the practice of this court has always recognised prior leave as prerequisite in the making of applications for prerogative orders. We should therefore look at some B decisions as regards the court's practice.
In the case of Mohamed v Regional C.I.D. Officer, Mbeya: Miscellaneous Criminal Cause No. 29 of 1978 (Mbeya Registry), a question was raised in a preliminary objection and it was whether an application for mandamus could be entertained in the absence of prior leave. Mwakibete, J. stated, inter alia: C

"The urgency of the matter - the subject of this application - cannot be overemphasized. There is an allegation - albeit impliedly - of flagrant misuse of authority to the suffering of the applicant. Surely the circumstances demand that the application is heard with dispatch on its D merits ....

It is a case properly crying for dispensation of the alleged leave. Thus by virtue of this court's inherent powers I hereby order that the leave to file the application be dispensed with". E

It is implicit in the above that the learned judge acknowledged the desirability of an application for prior leave but he was prepared to dispense with it on the exigencies of the case before him. The judge had been referred to Mwakilasa v The Principal F Secretary (Treasury): Miscellaneous Criminal Cause No. 14 of 1978 (Mbeya Registry), in which it appears to have been specifically held that prior leave was a necessity. Unfortunately, I could not trace that ruling here and I could not have attempted to do so without risking delay. But the issue arose again in Lakarau v Town Director Arusha: Miscellaneous Civil Application No. 56 of 1979 (Arusha Registry), G where an application for mandamus had similarly been brought without prior leave. It was there stated by Maganga, J., and I quote,

"... it still appears to me that the application as filed is incompetent for the reason that no leave H to file the application had been granted. The procedure for Orders of mandamus and other writs as stated at page 70 of Halsbury's Laws of England (3rd Ed. Vol. 11) make it mandatory for leave to apply to be obtained before an application for any of the writs is made. I
1983 TLR p380
LUGAKINGIRA J
It is stated therein that: "No application can be made unless leave therefor has been A granted ... ."
Because leave had not been obtained in that application, and for a number of other B reasons stated in the ruling, the learned judge dismissed the application.

A different view was taken by Mroso, J. in Makule v The R.P.C., Kilimanjaro; Miscellaneous Civil Application No. 87 of 1979 (Arusha Registry). He was then considering an ex parte application for leave to apply for mandamus and ruled that leave to apply was not part of the law of this country, citing D.M.T. Ltd. v The C Transport Licensing Authority [1959] E.A. 403 and section 2(2) of the Judicature and Application of Laws Ordinance, Cap. 453. He therefore dismissed or struck out the application. I have had the advantage of reading carefully the citations by Mroso, J., and I think, with respect, that none of them is devoted to the question of leave as such. In so D far as I can gather they are concerned generally with the law applicable.
Admittedly, one cannot but agree with Mroso, J. as to that law. The quotation by Maganga, J. from Halsbury's Laws in the Lakarau case takes source directly from 0.59, r. 3(1) of the Rules of the Supreme Court in England which were made under s. 120 of E the Administration of Justice (Miscellaneous Provisions) act, 1938, and which replace the Crown Office Rules, 1906. As pointed out by Mroso, J. these 1938 rules have no application in this country having regard to the reception date which is 22nd July, 1920. I would therefore respectfully agree that the law applicable is to be found in the Crown F Office Rules, 1906. Unlike the learned judge, however, I have not been privileged to see these rules, but I believe he was correct in saying that they do not require an application for prior leave. Nevertheless, I cannot for bear to express my anxiety that, to-date, one has to have recourse to obscure rules which were abandoned by their G country of origin more than forty years ago. I think there is urgent need to pay attention to subsection (2) of s. 349 of the Criminal Procedure Code.
Having said that, however, I still would not go to the extent of saying that absence of a statutory requirement implies that an application for leave, whenever brought, must H necessarily be rejected. I say so because, firstly, it is clear from s. 2(2), Cap. 453 that what this court is expected to apply is the substance only of the English Common Law, the doctrines of equity and the statutes of general application in force on the 22nd July, 1920. It has therefore never been suggested that an application for leave would I contravene the Crown Office Rules, 1906 and I believe that what the law does not forbid, it permits. Indeed if there is any

disadvantage in such a procedure, it accrues to the applicant himself. Secondly, A reverting again to the issue of practice, it is evident that prior leave has been the accepted procedure before this court for as long as I am unable to ascertain. Thus, apart from the unreported cases already referred to, in Re Fazal Kassam (Mills) Ltd., [1960] E.A. 1002, which was an application for the writs of certiorari and B mandamus, leave had been applied for and granted. And Re Hirji Transport Service [1961] E.A. 88 was a ruling on an application for leave and it was granted. It is therefore clear to me that the efficacy of this procedure has never before been questioned or doubted.
I am thus of the respectful view that by reason of long user, coupled with approval, the C practice of seeking leave has come to be part of our procedural law. The application now before me is therefore very relevant.

The second question consists of two parts both on the issue of jurisdiction. The first part is whether the court has jurisdiction to entertain the intended application for orders in view of the appeal pending before this court. The appeal seeks to test the validity of the D trial magistrate's order by which he restored the shop goods to the police. As pointed out the order was made upon the charge being withdrawn under s. 86(a) of the Criminal Procedure Code. I am not here called upon to go into that order for it may receive attention in the appeal itself. Nevertheless, I can look into the intention of that appeal. E Undoubtedly, it is intended to secure the reversal of the magistrate's order and, logically, the restoration of the goods, or their value, to the applicant. The purpose of the intended application for certiorari, on the other hand, is to quash the decision to sell the goods and no more. And it is relevant to emphasize the fact that the goods have in fact already F been sold. The fundamental question to which I desire to address my mind is whether where there is a right of appeal, and it has been exercised, the aggrieved party can resile from the procedure he has adopted and have recourse to prerogative orders.
The question has been the subject of discussion before. In Shah Vershi & Co. Ltd. v G The Transport Licensing Board [1971] E.A. 289, a Kenyan case, it was held by Chanan Singh, J., at p. 294 that:

Ordinarily, the High Court will decline to interfere until the aggrieved party has exhausted his H statutory remedy .... But this is a rule of policy, convenience, and discretion, rather than a rule of law. In other words, the existence of a right of appeal is a factor to be taken into account: it does not bar the remedy (of certiorari), especially where the alternative is not speedy, effective, I and adequate ...

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LUGAKINGIRA J
He went on: A

"... I am of the view that neither the existence of a right of appeal nor the filing of an appeal deprives the company of its right to ask for certiorari". B

In that case an appeal had been lodged with the appropriate body several months before the above decision but had never been listed for hearing. Similar appeals had been lodged by the same applicant over two years earlier and these too had never been listed for hearing. It was in those circumstances that the above decision was reached. In the C earlier case of Re A.G.'s Application [1958] E.A. 482, it was said by Cram, Ag. J., at p. 485:

"It is well-settled law that, where there is express legislation as to appeal, the prerogative, D while not repealed (for that is difficult to conceive) cannot ordinarily be invoked unless and until the local substantive provisions have been fully exploited and found wanting in remedy. The ancient remedy of prerogative is from time to time superseded. In a sense it become obsolete". E

He went on, at p. 486:

"I am unable to see how the appellant can now be permitted to abandon the procedure he has followed, recede from the statutory procedure hitherto followed and ignore procedure for relief F provided by a statute and be permitted to invoke the non-statutory jurisdiction provided by the prerogative".

The above two decisions express the same thing, though with a shift of emphasis, that a G statutory remedy takes priority over but does not exclude a prerogative relief. One can therefore suggest with a degree of certainty that in Kenya an application for prerogative orders may lie even where there is a right of appeal, and the existence of one, depending on the circumstances of the case, for instance, the failure of the appeal to provide a speedy, effective solution, or at all. H

The position in this country does not appear different. In Re Fazal Kassam (Mill) Ltd. (already referred to), one of the objections raised was that the applicants were precluded from seeking relief by way of mandamus since they had a right of appeal to the Minister against the respondent's refusal to issue them with a coffee exporter's I licence. It was stated by Sir Ralph Windham, C.J., at p. 1005, that:

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LUGAKINGIRA J

"... it is not the law that the court will always refuse mandamus when the applicant could have A appealed. The matter is one of discretion, to be carefully and judicially exercised, the position being simply that as stated in Halsbury's Law of England (3rd Ed.) Vol. 11 at p. 107:

`The court will, as a general rule, and in the exercise of its discretion, refuse an order of B mandamus, when there is an alternative specific remedy at law which is not less convenient, beneficial and effective.'

The preliminary objection was overruled because of the circumstances of the case which C included the fact that on previous occasions the applicants' appeals to the Minister had on each occasion been rejected without reasons being given. While that part of Sir Ralph Windham, C.J.'s decision was directed at mandamus only the same position appears true for certiorari. In the same edition of Halsbury's Law it is stated at p. 130 D that

"There is no rule to certiorari, as there is with mandamus, that it will lie only where there is no E other equally effective remedy; and provided the requisite grounds exist, certiorari will lie although a right of appeal has been conferred by statute".

I think, with respect, that is a sound summary of the law. I would therefore say, from the totality of these authorities, that the existence of the right of appeal and even the F existence of an appeal itself, is not necessarily a bar to the issue of prerogative orders. The matter is one of judicial discretion to be exercised by the court in the light of the circumstances of each particular case. Where an appeal has proved ineffective, and the requisite grounds exist, the aggrieved party may seek and the court would be entitled to G grant, relief by way of prerogative orders. The simple question we are therefore left with is whether such grounds exist in the intended application. I am of the unfortunate view that they do not.

In the first instance, the applicant's appeal was only recently filed. There is therefore no H question of delay nor is there any question of that procedure being exhausted.

Secondly, the appeal is potentially, if all goes well, more effective. It could result in the goods, or their value, being restored to the applicant; but certiorari can only result in quashing the decision to sell them and no more. Thirdly, and more seriously, the goods have already been sold. I

LUGAKINGIRA J
There is therefore no decision which can be arrested by certiorari. The same is true of A the trading licence. It has already been cancelled. Certiorari cannot issue to grant a new licence. In short, there are no grounds for the applicant to resile from the appeal already filed by him and seek remedy by way of certiorari and, I apprehend the court is B not expected to engage in a futile exercise. I have therefore come to the sad conclusion that the intended application for certiorari is superfluous and this court cannot exercise its discretion to entertain it.
The second leg of the second question is whether the court has jurisdiction to entertain the intended application in view of its orders in Miscellaneous Criminal Cause No. 14 of C 1981. Mr. Mbezi said the court had jurisdiction since in the intended application the respondents are different. He referred me to no authority and I could find none. I would venture to suggest, however, that the principle to be followed in this regard is the same as where there is a right of appeal. There must exist grounds upon which a second D application can be brought and this in my view, cannot merely be the existence of other respondents. It has, I think, to be demonstrated that the earlier application has proved ineffective. The applicant's affidavit does not so state although there could be genuine apprehensions that the first application would not deliver the goods. Presumably, the E better course would have been to amend the first application and join the present respondents who, apparently, became known at the hearing of that application. But to require the court to exercise the same powers in parallel applications is not only an exercise in confusion but something I cannot read in law or precedent.
There is yet another aspect to be considered. As far as I am aware certiorari, as with F prohibition, may issue where an inferior tribunal has wrongly assumed jurisdiction or has exceeded jurisdiction in the discharge of judicial functions. It was not suggested, even remotely, that the Area Commissioner or the Kamati ya Ulinzi na Usalama acted G as such tribunals or that they did so without or in excess of jurisdiction.
This is not to say that they acted correctly. But indeed the decisions complained of do not bear any judicial character. They appear to be purely administrative. It is stated in Halsbury's Law (above, at pp. 134-135, that H

"Certiorari will issue to quash the determinations of any body of persons having legal authority to determine questions affecting the right of subjects and having the duty to act judicially. Certiorari lies only in respect of judicial, as distinguished from administrative acts". I

As just stated the Area Commissioner and the Kamati ya Ulinzi na Usalama appear A to have acted, if true, in a purely administrative capacity and the applicant's affidavit does not allege to the contrary. The intended application thus fails to disclose a prima facie case for the intervention of this court. As stated by Biron, Ag. J., as he then was, in Re Hirji Transport Service, cited earlier, there has to be a prima facie case before leave B can be granted. There being no prima facie case and bearing in mind the other conclusion I have reached earlier, I am satisfied that this application must fail.
C Leave refused.

1983 TLR p385
D
[zRPz]JAYANTILAL P. RAJAN v CITY COUNCIL OF DAR ES SALAAM 1983 TLR 385 (HC)

Court High Court of Tanzania - Dar Es Salaam
Judge Mnzavas JK

August 3, 1985
CIVIL CASE 40 OF 1982 E
Flynote
Land Law - Allocation of land - Land allocated and then complaint by another that it was directly in front of his house - Whether Ministry of Lands has power to order plot to be divided between the two by way of rectification of Land Register - S.99 Land Registration F Ordinance, Cap. 334.
Land Law - Public land - Allocation to another person - Whether prescriptive title can be acquired against the Government - S. 3(1) Land Ordinance Cap. 113. G
-Headnote
The plaintiff had been granted a right of occupancy on a plot of land at Sea View, Dar es Salaam in 1979. His neighbour complained to the Principal Secretary, Ministry of Lands, Housing and Urban Development that the plaintiff had been offered land which was in front of his house. The plaintiff was stopped from developing the land pending H investigations. After investigations, the Ministry ruled that the allocation of the plot to the plaintiff was in order and consequently, the order stopping him from developing it was lifted. The plaintiff and his neighbour were subsequently ordered by the Director of Land Development Services to submit their certificates of occupancy so that a Deed of I variations could be prepared to split the plot between the two. In consequence, the defendant ordered
1983 TLR p386
MNZAVAS J
the plaintiff to stop developing the land and started re-surveying it with a view to splitting A it up. The plaintiff filed a suit against the defendant seeking a declaration that he was the rightful owner of the said plot.
Held: (i) No person can acquire a prescriptive right over land against the Government; B
(ii) there was no error or omission in the land register; nor mistake or any sufficient cause to justify rectification of the land register under section 99 (1)(f) of the Land Registration Ordinance Cap. 334.
Case Information
Judgment for the plaintiff. C
Case referred to:
1. Re: Chowood's Registered Land [1933] Ch. 574.
M. Raithatha for the plaintiff D

Ihema for the defendant.

[zJDz]Judgment

Mnzavas, J.K.: The plaintiff Jayantilal P. Rajan was granted right of occupancy on Plot Nos. 2361/4 and 2432/4, Sea View, Dar es Salaam in 1979 as per letter of offer dated E 9/6/79 - Exhibit P 1. In 1981 plaintiff's neighbour one, Narendra Patel complained to the Principal Secretary, Ministry of Lands Housing and Urban Development that the plaintiff had been offered land which is in front of his (complainant's) house. F

As a result of this complaint by Mr. Patel the Principal Secretary wrote to the City Director (Exhibit P.7) ordering him to stop the plaintiff from developing the land pending investigations. The plaintiff was accordingly stopped from developing the land pending investigations regarding Patel's complaint. Investigations were made and concluded and the Principal Secretary wrote to Mr. Rajan (Letter No. L.D. 91419/26 of 29/7/81 - G exhibit P8 saying inter alia ..." I have now understood your case and I am satisfied that you followed all the set procedures and you acquired the parcel of land in accordance with the regulations set by the law pertaining to land.

I wish therefore to confirm that you have a clear right over Plot No. 2361/4, CT. No. H 186056/33, and you can continue with your development plans over this plot. I would like to end by thanking you for your co-operation in this matter".

Despite this letter (Exhibit P8) in March, 1982 the Director of Land Development Services wrote a letter - (Exhibit P14) to both the plaintiff and Mr. Patel asking them to I submit to the land office their

certificates of right of occupancy so that a Deed of Variations of rights of Occupancy A could be prepared. The City Council, the defendant, stopped the plaintiff from developing the land and started re-surveying the land with a view to split it up.

This prompted the plaintiff to come to Court and is now seeking that he be declared the rightful owner or the disputed plot. The plaintiff also asks the Court to restrain the B defendant, the City Council, from dividing the plot.

The defendant argued that despite the grant of right of occupancy over the disputed plot granted to the plaintiff the matter was reviewed by the Ministry and that it was finally ordered that the plot be divided so that the plaintiff gets the parcel of land behind his C house and Patel gets the other parcel of land behind his house. In support of the defendant's case five witnesses gave evidence. Husson Mwamakula, (DW1), the local cell leader told the court how he tried to resolve the dispute between the parties over the land. According to his testimony both the cell-meeting and a ward meeting (which later D also heard the dispute) resolved that the area be divided between Patel and Rajan. Mr. Patel, (DW2) the complainant told the court that the disputed piece of land is behind his house. He said that after Mr. Rajan, the plaintiff, had acquired right of occupancy over the disputed land he (Patel) complained to the Ministry Lands and that after E investigations the Ministry ordered that the land be divided so that he, Patel, gets the parcel of land immediately behind his house and the plaintiff remains with the land

behind his house. Mr. Patel and Mr. Rajan are apparently close neighbours and their houses are adjacent each other. F

Granvil Mayao (DW3), a City planner, told the court how the disputed plot was granted to the plaintiff and how later the Ministry found that there was a mis-allocation of the plot to the plaintiff and decided to rectify the error by dividing the parcel of land between the parties. Mr. Mustapha Nyang'anyi who was, at the material time, Minister of Lands G Housing and Urban Development - (DW4) testified to the Court how he dealt with the dispute between Rajan and Patel and how he inspected the disputed piece of land accompanied by his Principal Secretary and his Director of Land Development Services.

According to his evidence they discovered that it was an a error by the City Council to H grant the whole plot to Rajan. Thereupon, according to his testimony, the Ministry recommended that the error be rectified as Mr. Rajan had applied for grant of right of occupancy of the plot behind his house only.

The Court also heard evidence from the Acting Director for Lands, (DW5), who told I the court that the disputed land was granted to the

plaintiff but that after complaints by Patel the Ministry decided that the disputed plot be A divided between Patel and Rajan.

In his submission Mr. Ihema, learned counsel for the defendant argued that the Ministry had power to order that the disputed plot be divided between the parties by way of rectification of the Land Register as provided under section 99 of the Land Registration B Ordinance, Cap. 334.

It was submitted that the Ministry took the decision to divide the disputed land between the parties because it was argued, Mr. Patel had a prescriptive right over the piece of land behind his house. In support of this argument the learned counsel referred the court C to the decision in Re-Chowood's Registered Land (1933) Ch. 574.

It was argued that the existence of a title per se is not a ground for not effecting rectification under section 99 of the Land Registration Ordinance where there are grounds calling for such action. In the present case the learned counsel argued that the D decision to divide the plot came after the Minister had made exhaustive investigations and became satisfied that the ends of justice demanded such action.

In the alternative Mr. Ihema argued that the defendant, the City Council, merely complied with the decision of the Government and that as such, it was submitted, the suit E against the City Council was misconceived. The learned counsel asked the Court to dismiss the suit as incompetent.

In rebuttal Mr. Raithatha, learned counsel for the plaintiff argued that before the plaintiff acquired title over the land, the disputed land was public land. In support of this F argument the Court was referred to sections 3 and 4 of the Land Ordinance, Cap. 113. It was submitted that no person can acquire prescriptive rights over land against the Government. It was argued that the President had power to grant the land to Rajan the plaintiff.

As for the case quoted by the learned defence counsel it was Mr. Raithatha's argument G that the case dealt with Land Law in England which it was submitted was different from our land law. It was Raithatha's submission that at the time the Government granted the disputed plot the land was public land and that the President had power to grant the land to the plaintiff. H
It was argued that after the grant was made to the plaintiff Mrs Patel complained to the land officer in 1980 and that after investigation the Principal Secretary wrote a letter (P9) to her to the effect that she had no right over the land. It was argued that there was no mistake regarding the extent or the location of the disputed land before it was allocated I to the plaintiff.
1983 TLR p389
MNZAVAS J
As for the provisions of section 99(1)(f) it was argued that the section concerns mistakes A in the register and that it does not apply on the facts of this case.
There has never been a dispute that the disputed plot was lawfully granted to the plaintiff who in confirmation of the grant was eventually issued with a certificate of title N. 186056/33. That the plaintiff is the legal owner of the disputed plot is also evident from B no lesser a person than the Principal Secretary to the Ministry of Land, Housing and Urban Development - Exhibit P.8. And what is more there is the letter by the defendant himself - (exhibit P.11) addressed to the plaintiff telling him to proceed with development C of the land as he was the rightful owner of the land. Exhibits P. 12, P. 13 and P. 16 are also to the same effect.
When the City planner, (DW3), was cross-examined regarding Exhibit P.11 he said inter alia:

.... Yes at that stage I was of the view that the Ministry had reached a conclusive decision that D the plot was legally allocated to Rajan.

On being cross-examined as to whether the City Council, the defendant, knew the extent and location of the disputed plot before it was granted to the plaintiff the City planner, (DW3), replied .... "Yes, the City authorities knew where the disputed plot was E situated". The evidence of the Director for Lands, DW 5, also supports the plaintiff's case that the plaintiff is the lawful owner of the disputed plot.
In his minute - m6 (in exhibit D6) the Minister, (DW4), categorically told his Principal Secretary that the plaintiff was the owner of the plot. This was apparently after Patel F had complained to the Ministry regarding the plot. In the minute, (M6), the Minister emphasized that the Party at District and Regional levels, the City Council and the Prime Minister's office had dealt with the matter and that all of them were satisfied that the disputed plot belonged to Rajan, the plaintiff. This was in April, 1981. G
That the same Principal Secretary and the same Minister should make an about-turn and say exactly the opposite of what they had said four months earlier is, to say the least, beyond my comprehension. In F.27 (exhibit D.6) the Director for Land Development Services told the City Director that a mistake had been made by the Ministry of Lands in H granting the disputed piece of land to the plaintiff, Mr. Rajan, and that the Minister had ordered that the mistake be corrected under section 99 of the Land Registration Ordinance, Cap. 334, so that the disputed piece of land be allocated to Mr. Patel.

Indeed, and as I have already mentioned above, Mr. Ihema, learned counsel for the I defendant argued that the Ministry had power under section

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MNZAVAS J

99 to make a rectification to the effect that the land granted to the plaintiff be divided so A that Mr. Patel gets the plot behind his house.

The argument by Mr. Ihema for the defendant is interesting but, with respect to the learned counsel, not legally convincing. There is no dispute that before the land in dispute was allocated to the plaintiff, the land belonged to the Government. In other B words the land was public land under section 3(1) of the Land Ordinance, Cap. 113. And as the learned defence counsel will no doubt agree on reflection no person under our law can acquire a prescriptive right over land against the Government. That this is law is amply brought out by section 4 of the Land Ordinance, Cap. 113 of the laws. C

That being the position the argument by the defence that Mr. Patel had a prescriptive right over the land against the Government has no leg to stand on.

As for the argument that the Ministry of Lands had power to make rectification of the title under section 99(f) of Cap. 334. D

The section says:

Subject to any express provisions of this Ordinance, the land register may be rectified pursuant to an order of the High Court or by the Registrar, subject to an appeal to the High Court in any of the following cases". E

(a) .....

(b) .....

(c) ..... F

(d) .....

(e) .....

(f) in any other case, where by reason of any error or omission in the land register or by reason of any memorial made under a mistake or for other sufficient cause it may be deemed G just to rectify the land register.

The evidence does not show that there was an error or omission in the land register; nor does the evidence show that there was a mistake or any sufficient cause to justify H rectification of the land register so that Mr. Patel gets part of the disputed piece of land.

On the contrary, and as I have already stated above, both the city planner, (DW3), and the Director for Lands, (DW4), told the Court that the defendant knew the extent and location of the disputed plot before he allocated it to the plaintiff. He cannot therefore I be heard to say that the land register should be rectified under section 99(1)(f) of Cap. 334.

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As for the English decision quoted by the learned defence Counsel, I have had the A opportunity to read the case and I agree with the learned counsel for the plaintiff that the decision has no relevance on the facts of the present case.

As for Mr. Ihema's argument that the defendant merely complied with the order of the Ministry of Lands and that the plaintiff had sued the wrong person, this argument is B brought up for the first time. It is not part of the pleadings. On the contrary the defendant argues in his written statement of defence that in entering the premises he was complying with his supervisor's lawful order. On the evidence the defendant was properly sued. C

Having heard all the evidence I am satisfied that the plaintiff is the lawful owner of the disputed property -Plot No. 2361/4 and 2432/4 at Sea View, Dar es Salaam. The evidence amply shows that the plaintiff was lawfully granted right of occupancy over the land as per letter of offer dated 9/6/79 - Exhibit P1. D

Judgment is accordingly entered in favour of the plaintiff with costs which are to be taxed.

E Judgment for the plaintiff

1983 TLR p391

F

[zRPz]JUTHALAL VELJI LTD v THE THB ESTATE COMPANY LTD 1983 TLR 391 (HC)

Court High Court of Tanzania - Dar Es Salaam

Judge Maina J

December 14, 1984

CIVIL CASE 230 OF 1983 G

Flynote

Landlord and Tenant - Tenancy agreement for fixed term with option to review by notice three months before date of expiry - Option taken by notice one month and three days before expiry - Whether landlord bound by the agreement. H

Landlord and Tenant - Tenancy agreement - Negotiations on terms prior to signing -Signed agreement not contain terms agreed before signing - Whether agreement can be interpreted to include the terms orally agreed.

Evidence - Tenancy agreement - Disposition - Agreement in writing - Oral agreement prior I to signing written agreement but not in

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MAINA J

corporated in the written agreement - Whether extrinsic oral evidence admissible to vary A terms of written agreement - S.101 Evidence Act No. 6 of 1967.

Estoppel - Tenancy agreement - Lease for three years with option to renew for further term of two years on three months notice before date of expiry - Tenant desirous of longer term B during negotiations - Landlord assures tenant that no problem if covenants are observed - Tenant improves property - Whether landlord estopped from refusing to renew lease.

Rent Restriction Act - Maximum annual rent - Exemption order of Minister for Lands - C Whether Minister for Lands has powers to exempt - Rent Restriction Act Cap. 479 s 2(1).

Rent Restriction Act - Exemption Order in respect of particular premises only - Whether order discriminatory.
Rent Restriction Act - Exemption Order - Whether Minister should consult tenant before D making order - Rent Restriction Act Cap. 479 s.2(1).
-Headnote
The plaintiff leased a godown belonging to the defendant for a term of 3 years renewable for a further term of 2 years at a monthly rent of Shs. 13,860/=. It was expressly agreed E that in case the plaintiff opted to renew he should give notice to the defendant three months before the expiry of the first term. Relying on the agreement, the plaintiff carried out developments on the property involving substantial sums of money. The plaintiff failed to give the notice within the stipulated time and on opting to renew the lease, the F defendant refused. Instead the defendant offered the plaintiff a new lease on a rental of Shs. 65,000/= per month. The defendant had secured orders exempting him from the provisions of the Rent Restriction Act relative to restriction of right of possession and from the Minister for Justice relating to restriction on the amount of rent that may be G charged. The latter order was duly approved by the National Assembly as required by law. The plaintiff challenged the Orders as bad in law and the rent as excessive.
Held: (i) The discussion on the option to renew having been made prior to the signing of H the agreement and their not having been incorporated in the agreement which was presented for signing, the defendant was not estopped from denying his assurances;

(ii) the defendant had a right to refuse to renew the lease since the notice was not present within the time stipulated in the agreement;

(iii) the order by the Minister for lands relating to exemption from I

restriction of right of possession was bad in law because he did not have powers to issue A such orders;

(iv) the order by the Minister for Justice exempting the defendant from the provisions relating to restriction on the amount of rent that may be charged was neither discriminatory nor in breach of natural justice as there is ro requirement that the order should be general nor the tenant should be consulted. B
Case Information
Suit dismissed.
Cases referred to: C

1. Century Automobiles Ltd. v Hutchings Biemer Ltd. [1965] E.A.304.
2. R. v Electricity Commissioners [1924] 1 K.B. 171.
3. Board of Education v Rice [1911] A.C. 179.
4. Bates v Lord Hailsham [1972] 1 WLR 1373. D

R.C. Kesaria for the plaintiff.
T.L. Mkude and S. Mjasiri (Tanzania Legal Corporation), for the defendant. E

[zJDz]Judgment

Maina, J.: The plaintiff Juthalal Velji Limited, has filed this suit against the defendant, the THB Estate Company Limited, asking for the following reliefs: (a) a declaration that Government Notices No.113 of 17/11/82 and No.23 of 28/2/83 are bad in law, (b) a declaration that the defendant's demand for monthly rental of shs. 65,500/= for the suit F premises is contrary to the principles of natural justice and equity, and is arbitrary, (c) an order that the defendant be restrained from demanding higher rent than that fixed by the rent tribunal or from taking further proceedings for recovery of rent more than Shs. 13,937/= per month. G

Briefly, the evidence is as follows: The plaintiff is a holding company incorporated in Tanzania and it deals with the manufacture of travel bags, school bags and suitcases and other travel products. The defendant is a subsidiary Company of the Tanzania Housing Bank and it is engaged in estate development, construction, letting of warehouses and H also sells residential houses. Among its properties are four identical godowns situated at Mikocheni area in Dar es Salaam. These godowns are numbered 1, 2, 3 and 4. The suit premises are godown No. 1. Negotiations to let the suit premises to the plaintiff were held in 1976 and attended by PW. 1 Kumblakode Kutty and PW. 2 Girish Chande on I

behalf of the plaintiff Company, and the defendant was represented by the then General A Manager of the Tanzania Housing Bank one Mr. Yona.

It was agreed that the rent for the godown would be Shs. 15,500/= per month for a period of three years. That rent was, however, later fixed by the Rent Tribunal in application Nos. 78-83 of 1979, Exhibit P7, at Shs. 13,860/= per month effective from 1/1/80. B

As already stated, negotiations to let the suit premises to the plaintiff started in 1976. It was agreed that the lease would be for a period of three years renewable for a further period of two years provided three months' notice was given. On 28/9/79, before the C lease was signed, the plaintiff wrote a letter, Exhibit D4, to the defendant requesting that the terms of the lease should be altered to provide for a lease of six years instead of three years. The letter also requested approval to use the premises for storage or for light industry and confirmed that electrical installations would be such that they could be removed at any time without any damage to the property and that "the whole installation D can be removed at any time". The plaintiff also undertook that the office to be constructed at the suit premises "would be of timber modules and hence removable". That offer was studied by the defendant and DW3 Peter Tarimo was instructed to reply rejecting the offer for a six years' lease but approved the construction of temporary E offices and of electrical installations of temporary offices and of electrical installation of temporary nature. The letter dated 15/10/76, exhibit P2, which was also annexure A to the plaint is very specific that the lease would be for three years but could be renewed for further periods of three years provided three months' notice was given and if there has been no breach of the covenants, thereafter, the lease was sent to the plaintiff for F signature and it was duly signed by PW3 Girish Chande and another director of the plaintiff Company on 9/5/77. Clause 4(c) of the lease, Exhibit P1, shows that the lease was for a period of three years from

1/9/76, but could be renewed for a further period G of two years provided there was no breach of the covenants and provided further that the tenant gave three months' notice in writing before the expiry of the three years of the intention to renew the lease for two years.
By letter dated 27.7.1979, Exh. P6, the plaintiff gave notice of intention to renew the H lease. That letter, as can be seen, was written one month and three days before the lease expired. The lease commenced on 1.9.1976 and was to expire on 31.8.1979. The General Manager of the defendant Company, DW.1 Mohamed Khalfan, in his letter dated 31.7.1979, exhibit D.1, refused to renew the lease as the notice was not given I within the period prescribed in the lease. The defendant company offered the plaintiff a fresh lease of two years instead. This was rejected
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MAINA J
by the plaintiff. The defendant then asked for vacant possession of the suit premises and A filed a Civil Case No. 82 of 1980 in this court. By an order dated 16 June 1983 this court ordered that the suit for vacant possession should be filed in the court of resident magistrate and transferred the case to the resident magistrate's court. The suit is still pending in that court. The plaintiff alleges that sum of Shs. 1.6 million was spent to B improve the godown as it was believed that the lease would be for a longer period, and exhibit P.3 was produced showing the details of the expenses incurred by the plaintiff to improve the suit premises. PW1 Kumblakode Kutty said that his company would not have spent so much money for improvement of the godown if the lease was for a period of five years only. C
DW.1 Mohamed Khalfan, the General Manager of the defendant company, then approached the Ministry of Lands and Urban Development on what to do about the situation as the plaintiff was refusing to vacate the premises. Government Notice No. 113 dated 17.9.1982 was then published in the official Gazette by which the Minister for D Lands exempted the defendant company from all provisions of the Rent Restriction Act relating to restriction of right of possession of the suit premises. Another Government Notice No. 23 dated 28.2.1983 was later published in the Gazette and signed by the Minister for Justice giving exemption to the defendant company from all the E provisions of the Rent Restriction Act relating to restriction on the amount of rent that may be charged or collected by the defendant from any tenant occupying the suit premises. The exemption order was duly approved by the National Assembly as required under section 1 (2) of the Rent Restriction Act, Cap. 479. The plaintiff had not F been consulted before the exemption order was published. After the publication of the exemption order, GN. 23 of 28/2/1983, the defendant appointed Martin Heymann and Company Limited, a firm of surveyors, and the Managing Director of the firm, DW.2 Ian Grant, who is a chartered valuation surveyor who carried out the valuation of G the suit premises. He visited the site in June, 1983 and saw the identical godowns. The plaintiff was occupying godown No. 1 and the witness made valuation of godown No. 3. He estimated the costs of constructing a godown similar to the one in existence and, in his opinion, the cost would be Shs. 5,570,000/= as at the time of the valuation, H that is June, 1983. He calculated the annual rent at 14% of that cost and came up with a figure of Shs. 65,000/= per month. His report was tendered as exhibit

D.3. The plaintiff company was notified to pay the new rent of Shs. 65,500/= by the defendant's letter of 29 June, 1983 (Exhibit P.4) but resisted as it was considered too high. I
The plaintiff wrote a letter to the Ministry of Justice on 23 July, 1983
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MAINA J
protesting about the rent and requested that the rent could be increased to a reasonable A level which the plaintiff was willing to pay, but pointed out that the increase which was five times the existing rent was unjust and oppressive. The letter was tendered as exhibit P5 but there was no reply from the Ministry of Justice. B

The first issue in this case is whether the defendant is estopped from increasing the rent. Mr. Kesaria learned counsel for the plaintiff submitted that in view of the defendant's letter exhibit P.2 dated 15/10/1976, the defendant had given assurance that the lease could be renewed every three years by merely giving notice. He submitted further that C the plaintiff relied on the assurance given and spent substantial sums of money to improve the premises because it was believed that the tenancy would be for a long period. The plaintiff's proposal that the lease should be for six years was rejected by the defendant. Exhibit P2 reads as follows:

1. Lease term D

As for the term of the lease you suggest a term of six years rather than 3. Please note that by clause 4(b) the lease can be extended for a further period of 3 years if there has not been a breach of covenant and if the lessee so desires by merely giving three months' notice in E writing. Since this process is possible, the Bank does not foresee any difficulty on your part in having to give a written notice every 3 years.

That passage was taken by the plaintiff to mean an assurance that the lease would be for a longer period than three years. Mr. Kesaria submitted that the defendant is estopped from F increasing the rent and from denying that the lease was for a long period. He cited Century Automobiles Ltd. v Huntchings Biemer Ltd. [1965] E.A. 304. In that case the tenancy was for month to month but could be determined by either party by giving three months' notice. Subsequent to the making of that agreement, the landlord gave an assurance that the tenant G was secured for three years. The Court of Appeal held that the doctrine of equitable estoppel applied and headnote (ii) at page 304 reads "the remarks made by the managing director of the respondent company amounted to sufficiently clear and unequivocal that the H appellant company could regard itself as secure for three years, except in the event of a supermarket project materializing at an earlier date and the assurance was intended to be acted upon".
In that case, the assurance that the tenant was secure for three years was made I subsequent to the making of the tenancy agreement. So
1983 TLR p397
MAINA J
the tenant incurred the expenses to improve the premises after the assurance was given A subsequent to the making of the tenancy agreement. In the present case, the alleged assurance that there would be no difficulty in renewing the tenancy agreement every three years was given before the signing of the lease. Exhibit P2 was written nine months before the lease was

signed. With respect, I agree with Mr. Mkude, learned counsel for B the defendant, that the correspondence and discussions between the parties before the lease was signed, were offers and counter offers and whatever the parties agreed upon was reduced in writing in the form of the lease, exhibit P1 which the parties signed in May, 1977. The doctrine of estoppel does not apply on the facts of this case. The C parties are bound by what they signed in the lease.

Let me also point out that clause 4(c) of the lease is clear and unequivocal on the duration of the lease. No evidence can be introduced to vary, add to or contradict the terms of the lease. Section 101 of the Evidence Act 1967 is relevant. I do not see how D the evidence of Mr. Yona the then General Manager of the Tanzania Housing Bank who negotiated the lease would be relevant. Mr. Kesaria said that the defendant would have called Mr. Yona as a witness, but in my view, that was unnecessary. Whatever was discussed before the lease was signed, was later put in writing and the lease has been produced in court. If there had been a subsequent agreement after the signing of E the lease, as was the case in the Century case, that evidence would be relevant to consider whether estoppel applied. But in this case, there is no suggestion that such an agreement took place.

The terms of the lease are contained in clause 4 (c) of Exhibit P1 and it is provided that F the lease would be for a period of three years. The lease could be renewed once only for a further period of two years provided there was no breach of covenant and provided that notice was given in writing three months before expiry of the lease. It is beyond dispute that the lease expired on 30/9/1979. Under the terms of the lease G agreement, the written notice would have been given at least three months before the lease expired. But the plaintiff gave notice to renew the lease by its letter dated 27/7/1979. That was clearly a breach of the terms of the agreement. The defendant was, in my opinion, right in refusing to renew the lease. H

The defendant did not throw out the plaintiff but offered a fresh lease with new terms and conditions, but the plaintiff company did not accept the offer. The original lease, exhibit P1, was for a specific period of three years and since the plaintiff did not comply with the condition agreed, by giving three months' notice of intention to renew, that lease I expired without being renewed. I repeat that the plaintiff was at fault in not giving notice

within the period stipulated in the lease. The defendant was entitled to do what it did by A terminating the lease. Since I have found that the defendants' letter, exhibit P2, was written before the lease was signed the doctrine of estoppel does not apply, the defendant company was at liberty to offer a fresh lease with fresh terms and conditions.

The maximum annual rent provided in the Rent Restriction Act cannot apply where the B premises have been exempted under section 1(2)(b) of the Act. In this case the premises were exempted by the Minister from the provisions of the Act relating to restriction of the rent which may be charged. Whether the exemption order was bad in C law is a matter which I shall discuss when I consider the fourth issue. So, Mr. Kesaria's argument that the annual rent could not be increased to more than fourteen per centum of the cost of construction has no basis in view of the Minister's order. As regards the valuation report, exhibit D.3, it was prepared by an

expert, DW.2 Ian Grant, who inspected the premises. The improvements made by the plaintiff were excluded D from the assessment of the market value of the premises. No evidence was produced to challenge the finding in the report. It was not necessary for the plaintiff to be informed or to be present during the inspection of the premises made by DW.2. I accept exhibit D.3 as evidence on the market value of the premises. E

For the reasons given, the answer to the first issue must be in the negative. The defendant is not estopped from increasing the monthly rental.

As regards the second issue I have only to say that for the purpose of increase of rent F the plaintiff is not a protected tenant. The plaintiff breached the covenant in the lease agreement on notice to be given. For the purpose of vacant possession, it is for the district court to decide whether the plaintiff is a protected tenant, as the suit for vacant possession is pending at the district court.

I do not consider it necessary to discuss the third issue which was framed as follows: Is G Government Notice No. 113 of 17/11/1982 valid? It is not necessary to consider that issue because as Mr. Mkude conceded in his submission to the court, that order was invalid. The Minister for Lands has no power under the law to give the exemption to the landlord. Under section 2(1) of the Rent Restriction Act, Cap. 479 the term H "Minister" is defined to mean the Minister responsible for legal affairs. The Minister for Lands had no powers to make the exemption under section 1(2) of the Rent Restriction Act. I therefore answer the third issue in the negative.

I now turn to consider the fourth issue which is this: Is Government Notice No. 23 of I 28.2.1983 bad in law as pleaded in paragraph 12 of

the plaint? The order which was made under section 1(2)(b) of the Rent Restriction A Act, reads as follows:

> The premises known as TECCO Godowns situated at plots Nos. 1, 2, 3 in Mikocheni Industrial area Dar es Salaam in respect of which the THB Estates Company Limited, a public B corporation established under the Companies Ordinance, is the landlord, are hereby exempted from all such provisions of the Rent Restriction Act, 1962 relating to restriction on the amount of rent that may be charged or collected by the THB Estates Company Limited as the landlord from any tenant occupying any part of the premises. C

Section 1(2)(b) of the Rent Restriction Act 1962 as amended by act No. 57 of 1966 provides that the Act shall apply to all dwelling houses and commercial premises other than "any premises or class of premises in Tanganyika which the Minister may, with the approval of the National Assembly signified by resolution, by order published in the D Gazette, exempt from all or any of the provisions of this Act". The order, Government Notice No. 23 of 1983, which exempted the suit premises owned by the defendant company from the provisions relating to restriction on the amount of rent to be paid was E approved by the resolution passed in the National Assembly on the 27th January, 1983.

It was submitted on behalf of the plaintiff company that GN 23 of 1983 was unfair, unjust and discriminatory. Mr. Kesaria said that the plaintiff company was not given an opportunity of a hearing before the order was made and that the plaintiff was condemned unheard. Learned counsel also submitted that the defendant company has F other properties and the order was only made in relation to the premises occupied by the plaintiff and so the Order was discriminatory. Mr. Mkude, on the other hand, submitted that there are no provisions of the Rent Restriction Act requiring the Minister to consult G the tenants before the exemption order was made.

There can be no doubt, in my opinion, that the Minister for Justice had power under section 1(2)(b) of the Rent Restriction Act to exempt any landlord from the provisions in the Act relating to the rents that may be charged in any premises. Mr. Kesaria submitted H that the order was discriminatory because the defendant company has other properties which were not subject to the exemption order. I do not think that the Minister had to include all the properties owned by the defendant company in the exemption order. There are, as DW. 3 Peter Tarimo, the Technical Manager of the defendant Company said, other properties owned by the defendant in other areas of the I country which were also exempted. One

of them is Hifadhi House in Dar es Salaam. I have also noted that apart from the suit A premises, there were other premises owned by other landlords which were also exempted and the exemption orders were published as Govt. Notices Nos. 24, 25, 26 and 27 all dated 28/2/1983. So it is, in my view not correct to say that the order in respect of the suit premises was discriminatory. B

It was also said that the exemption order was unfair and unjust in that the plaintiff was not given a hearing before the order was made. The order was in a form of delegated legislation. Parliament invested the powers in the Minister to make such an order. Mr. Kesaria said that the plaintiff as tenants of suit premises should have been consulted C before the order was made. He said that a notice should have been given so that persons who would be affected could make representations. Learned Counsel cited, as an example, the publication by the Dar es Salaam City Council of the Council's intention to make by-laws on rates known as development levy. That argument can, in my view, D be disposed of by pointing out that under section 81 of the Local Government (Urban Authorities) Act No. 8 of 1982, there is specific mention that a local authority must publish in the Gazette the by-laws it intends to make and invite representations and objections from the people who would be affected. Similarly, section 16 of the local E Government Finances Act, No. 9 of 1982 provides that the local authority must publish notice on rates it intends to make within fifteen days after passing resolution for making the rate, and the rate shall not be valid unless notice of it is duly given in the manner prescribed. There is, however no express provision in the Rent Restriction Act which F requires the Minister to consult the people to be affected or to publish a notice before an exemption order is made under section 1(2)(b) of the Act. It is wrong to base the argument on the publication of rates made by the City Council on the facts of this case.

In support of his argument that the plaintiff as tenant of the suit premises had to be G consulted before the Minister made the exemption order, Mr. Kesaria cited several cases. One of them is the case of R. v Electricity Commissioners [1924] 1KB 171. In that case, the Electricity Act provided that the Commissioners had to do certain things and specifically provided for holding of inquiries and to consult people to be affected by H the Commissioners' decisions. It was held by the Court of Appeal that the scheme formulated by the Commissioners was ultra vires because the Act did not permit the Commissioners to set up two electricity authorities. In the present case, the Rent Restriction Act does not require the Minister to consult the tenant or other people to be affected by an order made under section 1(2)(b). Similarly in the case of Board of I Education v Rice [1911] 1 A.C. 179 cited by Mr. Kesaria there were

provisions in the Education Act requiring the education board to hold public inquiry in A order to find out if a local education authority has fulfilled its duty. Failure to hold such inquiry amounts to non-compliance with the provisions of the Education Act. But as I have already pointed out there is nothing in the Rent Restriction Act requiring the Minister to consult the people who would be affected by his order. B

Mr. Mkude, learned counsel for the defendant submitted that it was not necessary for the plaintiff to be consulted before the order was made. He said that as there is no requirement for consultation in the Act, delegated legislation could be made without consulting the people to be affected. He cited Bates v Lord Hailsham [1972] 1 WLR 1373. In that case the Lord Chancellor and his committee had consulted the Law C Society as required by the Solicitors Act before making an order on solicitors' remuneration. However, some solicitors wanted more time for consultation before the order was made. The Court of Appeal refused to grant more time for consultation. Meggary, J. said at p. 1378: D

> Let me accept that in the sphere of the so called quasi-judicial, the rules of natural justice run, and that in the administrative or executive duty, there is a general duty of fairness. Nevertheless, these considerations do not seem to me to affect the process of legislation, E whether primary or delegated. Many of those affected by delegated legislation, and affected very substantially, are never consulted in the process of enacting that legislation; and yet they have no remedy. Of course, the informal consultation of representative bodies by the F legislative authority is common place, but although a few statutes have specifically provided for a general process of publishing draft delegated legislation and considering objections, I do not know of any implied right to be consulted or make objections, or any principle upon which the courts may enjoin the legislative process at the suit of those who contend that insufficient time for consultation and consideration has been given. G

The learned judge went on to say:

> If the procedure laid down by Parliament is fairly and substantially followed, I cannot see that H the Committee need do more; and I see nothing in the evidence to suggest that the Committee has not fully and fairly complied with the statutory requirements.
>
> The above is the correct principle to be applied in this case. Parliament I

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has given powers to the Minister for Justice to exempt certain premises from the A provisions the procedure to be followed. The order must be approved by the National Assembly. The Minister, in making the delegated legislation, did exactly what was required of him. The order was debated and approved by the National Assembly. There can never be an implied right to be consulted in the making of delegated B legislation. If Parliament intended that persons to be affected by the Minister's order should be consulted first, it would have provided so in the Rent Restriction Act. The order was debated and approved by the National Assembly as required by the Act and that was in full compliance with the statutory requirements. I am satisfied that C Government Notice No. 23 of 28.2.1983 was properly made and it was not bad in law as pleaded. I therefore answer the fourth issue in the negative.
For these reasons this suit is dismissed with costs.
D Suit dismissed.
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E
[zRPz]SELEMANI TILWILIZAYO v REPUBLIC 1983 TLR 402 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

August 21, 1984
CRIMINAL APPEAL 31 OF 1983 F
Flynote
Criminal Law - Theft - Proceeds of stolen government cheque deposited in a bank account - Whether withdrawal of cash from the bank account amounts to stealing government money.
Commercial Law - Banker-customer relationship - One of debtor-creditor. G
-Headnote
By using a fictitious name of the payee the appellant was able to steal government cheques, deposit them in a bank account opened in the name of the fictitious payee, and H withdraw cash from the bank. The trial court convicted him on eleven counts of stealing government money. On appeal it was considered whether the money withdrawn from the bank belonged to the government so as to constitute stealing government money.
Held: (i) Bank customers, including the government do not own the money which is I deposited in the bank;
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LAGAKINGIRA J
(ii) the stolen government cheques deposited in the National Bank of A Commerce, Kuu Street Branch, Dodoma, became the bank's and not the government's money; thus a conviction of stealing government money cannot be sustained;

(iii) the evidence available shows that there was theft of the government cheques by the appellant;

(iv) on the analogy that a cheque can be imported into a charge by virtue of its being money within the meaning of that term in the Penal Code the appellant was properly convicted as charged on the proven counts of theft.

Case Information

Appeal dismissed.

Cases referred to:

1. Rwebangira v R. [1975] LRT no. 26.
2. Joachimson v Swiss Bank Corporation [1921] All E.R. Rep. 92.
3. Foley v Hill [1848] 2 H.L. Cas. 28.
4. Menzour Ahmed v R. [1957] E.A. 386.
5. R. v Keena 11 Cox CC. 13.
6. Katengele v R. [1969] E.A. 603.

D.C. Mbezi for the appellant.

[zJDz]Judgment

Lugakingira, J.: The appellant Selemani Tilwilizayo was charged in the District Court of Dodoma on twelve counts of forgery, twelve of uttering, twelve of stealing by public servant, one of attempting to obtain money by false pretences and one of conspiracy to steal in which he was jointly charged with one Marygrace Ntomola. He was acquitted on all the forgery and uttering counts as well as on the attempting and conspiracy counts. He was then convicted on eleven of the stealing counts, i.e.; counts 25, 26, 27, 28, 29, 30, 31, 32, 33, 34 and 35. The twelfth count of stealing i.e., count 36, completely escaped the attention of the trial Resident Magistrate who made no mention of it anywhere in his judgment. Following conviction the appellant was sentenced to concurrent terms of five years' imprisonment on each of the eleven counts. He then appealed against convictions and sentences through learned counsel Mr. Mbezi who also represented him at the trial.

It is necessary to give a brief background of the case. The appellant and the second accused Ntomola were accounts assistants at the Prime Minister's Office, Dodoma. It seems that between 1977 and 1979 food reliefs were being transported by private transporters from depots of the National Milling Corporation to various villages in Dodoma Region. The

transporters were being paid by the Prime Minister's Office on presentation of relevant documents. Payment vouchers and cheques were being prepared on the strength of these documents. One such transporter was a person named Omari Saidi of Kondoa who had ceased to be a transporter in this connection, twelve cheques were prepared in his name on the strength of documents purportedly submitted by him and these cheques were banked in an account purportedly opened by him at the NBC Kuu Street Branch, Dodoma. In fact Omari Said (PW9) never submitted those documents and my examination of them reveals that the possibly true transporters' names are deleted and the name of Omari Saidi is substituted. Further, although

PW9 had an account at the C Kuu Street Branch, the cheques were not banked in that account. They were banked in the account of a person who assumed the name Omari Saidi and who was advised to add another name to distinguish himself from PW 9. He added the name Mohamedi. The trial magistrate was therefore correct in saying that the holder of the account and in D whose name the cheques were prepared was fictitious. It was then discovered that the appellant was the person who had opened that account. It was also discovered that the cheques had been dispatched through P.O. Box 793, Dodoma which was being rented by Omari Saidi Mohamedi and that that person was the appellant. The appellant E was arrested and charged on these grounds. But because of very poor investigations it was assumed, indeed testified, that the cheques and the supporting documents were otherwise genuine. The appellant was therefore charged with forging the cheques only in so far as he was said to have signed them as payee. He was then said to have produced F them at the bank and to have stolen the proceeds thereof, which proceeds were said to be government property.

The appeal has given me a great deal of difficulty. The difficulty stems from the fact that the trial magistrate wrote his judgment as if he were away from the evidence; it also stems from the fact that very important documents were either not tendered or, if they G were, they could not be found when the appeal came up for hearing. It is necessary to set out fully the sorrowful state of affairs. I could not find the following: (1) Exh. P1(B), a letter said to have been written by the appellant to the second accused bearing the address P.O. Box No. 793, Dodoma. (2) Exh. P2(A), a cheque No. 608753 in H connection with count 37 of attempting. (3) Exh. P2(B), a cheque No. 608784 in connection with the same count. (4) Exh. P3(E), a cheque No. 602533 (or 602933) in connection with count 29. (5) Exh. P3(H), a cheque No. 604109 in connection with count 33. (6) Exh. P3(1), a cheque No. 603712 in connection with count 32. (7) Exh. P3(J) a cheque No. 604970 in connection with count 34. (8) Exh. P3(K), a cheque I No. 605708 in connection with count 35.

(9) Exh. P3(L), a cheque No. 605854 in connection with count 36. (10) Exh. P4 which A on record is described as "a transport income voucher bank statement an envelope Box 793 to Omari Saidi which the accused 2 brought to me". (11) Exh. 7(A)-(I), being nine copies of bank pay-in slips. (12) Exh. P10, Three of four Vote Receipts and Payments Cash Books which were returned to the Prime Minister's Office in the course B of the trial but apparently never restored to the trial court. (13) Exh. P12, a Postal Rental Card which I gather from the list of exhibits drawn up by the trial magistrate himself was "collected" (perhaps by the Postal authorities) on 23.4.79; but I cannot understand this since it was tendered on 10.9.82. (14) Exh. P13, the Post Office Directory for 1980/81. There is the cover of the directory only, the body having C disappeared. (15) Exh. P14, being payment voucher Nos. 165 (or 168)/11 and 165/89 which, however, appear to have been previously tendered as part of Exh. P4. (16) Exh. P15, an audit report. (17) Two unmarked cheques for the defence Nos. 604520 and 154315. But I do not know how it was possible to tender these since the record shows, D and Mr. Mbezi confirmed, that all efforts to trace them at the bank and at the Prime Minister's Office yielded no fruits. I

am certain that this was poor recording of the evidence, a feature typical throughout the record. (18) The final submissions of Mr. Mbezi at the trial which I gather from the judgment were made in writing. There were E then documents which were not tendered at all and cannot be seen. These are: (1) A letter or chit said to have been written by the appellant introducing one Bakari Iddi (PW3) to collect Exhs. P2(A) and P2(B). In fact that letter or chit does not appear to have been brought to the court at all. (2) The bank form which the appellant and his F referee (PW2) signed when the appellant opened the bank account. It was brought to the court and identified by PW2 and that was the end of the matter. (3) The bank specimen signature card which the appellant signed when opening the account. It was brought to the court and identified by a bank official (PW8) and that was the end of the G matter. To make the position worse the trial magistrate did not in his judgment refer to any document, except Exhs. P4, P13, P14 and P15 which he merely mentioned in passing and almost by accident. I therefore find it difficult to say that he addressed his mind to any of the exhibits. That is the unfavorable situation in which I am called upon to determine the appeal. H

How and where do I start? I find it convenient to start from the end of the story - at the bank - going up to the beginning. I will therefore first determine whether if there was money stolen from the bank, it was government money. I am of the unfortunate view that it was not. If we assume, first, that Omari Saidi was a true person and that he was I entitled

to the money in the twelve cheques, then, in that case, if any money was stolen it was A that of Omari Saidi. It became Omari Saidi's the moment it was collected from the bank and could no longer be said to be government property. We have seen, however, that Omari Saidi was fictitious. Now, if any money was stolen, whose was it? It was undoubtedly the banker's money. Bank customers, the government included, do not B own the money which is deposited in the bank. I am indebted to Mr. Mbezi who referred me to Rwebangira v R. [1975] LRT n. 26 in which I expressed a similar view in the past. There are indeed other and older authorities to the same effect, notably, Joachimson v Swiss Bank Corporation [1921] All E.R. Rep. 92 and Foley v Hill C (1848), 2 H.L. Cas. 28. In the latter case, the leading case on this subject, Lord Cottenham, L.C. said:

> Money, when paid into a bank, ceases altogether to be the money of the principal; it is then the money of the banker who is bound to return an equivalent by paying a similar sum to that D deposited with him when he is asked for it.

These English decisions are cited with strong reliance in H.P. Sheldon's The Practice and Law of Banking (9th Ed., at p. 201) which appears to be an important work in this E field. The author himself similarly says:

> The banker when he receives money from a customer does not hold the money in a fiduciary F capacity. To say that money is 'deposited' with a banker is likely to cause misapprehension. What really happens is that the money is not deposited with, but lent to, the banker, and all that the banker engages to do is to discharge the debt by paying over an equal amount when called upon.

In this connection, I have also had recourse to s. 258(2) of the Penal Code and to the G definition of "special owner" therein but I can find nothing in that definition which takes away from the view I am expressing. By the said definition a person may become a special owner of anything capable of being stolen if inter alia he has a proprietary interest in the thing but, in my respectful view, a bank customer does not have a H proprietary interest in the money paid into a bank for the simple reason that the moment it is received by the banker the customer cannot point to any money as his property. He is only a creditor to the banker and it would be extraordinary for a creditor to say that any money held by his debtor, wherever it may be, is his property. It may of course be I inquired whether a customer does not suffer injury if, as in the instant case, his

account is debited on forged or stolen cheques. Admittedly, he suffers, but the injury is A merely tortious. The issue, as I apprehend it, would then be whether the banker, as is the instant case, was negligent in permitting a false account to be opened and in permitting false cheques to be banked. For these matters one has to turn to legislation dealing with cheques and bills of exchange generally but his is outside the scope of this judgment. I believe the foregoing sufficiently demonstrates that if there was theft of B money in this case it was not government money.

It is not necessary but it may be desirable to know whether in fact any money was stolen. This is one of the areas where the bungling of the evidence and the ineptitude of C the trial magistrate occasioned me considerable pain. There were 43 (I saw only 41) personal cheques (Exh. P8) of Omari Saidi Mohamed - the appellant's in fact - which show that a large amount of money was withdrawn from the bank. It is also irresistible to find that this money was withdrawn from the account into which the stolen cheques were banked for, apparently, there was only one account in the name of Omari Saidi D Mohamedi. However, we do not know for certain that that account was credited with the money in those cheques only. There was a bank statement in Exh. P4 which, as already stated, cannot be seen. But the trial magistrate who saw it - if he did, really - E makes no mention of that document and makes no mention of the withdrawals effected through Exh. P8. In his view, there was theft merely because Omari Said was fictitious. The problem I am posing is neither academic nor a mere technicality. According to Mr. Mbezi who saw the statement, and there is no way to support the contrary, it showed a credit balance. It is therefore difficult to say that the money withdrawn was necessarily F the money represented in the stolen cheques and no other. For all we know the money in those cheques might still be standing in Omari Saidi Mohamedi's account. In order for there to be theft of cash as charged, cash has to be collected. In Menzour Ahmed v R. [1957] E.A. 386. The appellant, an advocate, had received on behalf of G his client two cheques of Shs. 3,000/= and 5,000/=. He endorsed the cheque for Shs. 3,000/= and passed it on to a garage company to reduce his indebtedness with them. He paid the cheque for Shs. 5,000= into his own bank account. He did not account for any money to his client. He was charged before a resident magistrate's court on two H counts of stealing by agent the cash represented in the cheques and was convicted on

both counts. On appeal to the Supreme Court of Kenya the conviction on one count was quashed. On further appeal on the remaining count the Court of Appeal said (at p. 388): I

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In our opinion the evidence could not support a conviction for stealing the proceeds of the A cheque .... Although the appellant received credit for the amount of the cheque, he did not convert it into money by cashing it and no money, as distinct from the cheque itself, ever came into his possession. There must be an actual receipt of money before there can be a conversion of it. B

The Court cited R.v Keena, 11 Cox C.C. 13 for authority. In the instant case, therefore, in the absence of evidence that the money withdrawn was necessarily the proceeds of the stolen cheques, it is difficult to sustain the convictions for stealing those C proceeds. And, if I should repeat myself, I would still say that if the money withdrawn was the proceeds of those cheques, it was all the same not government money but the banker's, and the proper charges would be those of obtaining money by false pretences. It is not available at this stage to alter the charges but that could only have been done at the trial. D

I am satisfied, however, that there was theft of the cheques themselves and I have been deliberately implying so. The question is whether, if there is evidence, the convictions can be sustained on that ground. I have no doubt they can and my authority for saying E so is once again Menzour Ahmed (above) as well as Katengele v R. [1969] E.A. 603. The ratio decidendi of these cases is that the definition of "money" can be imported into a charge so as to make reference to a sum of money therein to embrace a cheque for that sum if by doing so there would be no prejudice to the accused. I am certain that no prejudice would arise in this case for the trilogies of forging the cheques, uttering them F and stealing the proceeds thereof must have imported into the appellant's mind the theft of the cheques as well. What I have therefore to determine is whether the cheques came into his possession. I will preface this by observing that the question is made slightly difficult by the omission of the prosecution to tender the bank documents which the G appellant was said to have signed when opening the account. It will therefore be necessary to rely on circumstantial evidence. This is not to say, however, that there is any doubt about the fact of the appellant's opening of the account. There was in this connection the evidence of PW8 which the trial magistrate believed and it was H corroborated by PW2. I cannot agree with Mr. Mbezi in his submission that PW2 was a person to be doubted in the absence of evidence that when he acted as referee for the appellant he also knew that the appellant was engaging in fraud. Indeed, their meeting at the bank seems to have been accidental.

The absence of the bank documents notwithstanding it is still possible to find that the I cheque came into the appellant's possession. There was

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other evidence from which it was possible to infer that he signed the cheques as payee. A Although the trial magistrate acquitted the appellant of forgeries, which, incidentally, was

attacked by learned counsel for the Republic Mr. Senguji, the acquittal does not preclude this Court from evaluating the evidence and drawing its own inferences. There was hence evidence from PW8 that on 22.11.79 the appellant presented at the bank his B personal cheque (part of Exh. P8) to collect Shs. 25,000/=. I have marked this cheque as Exh. P8 (41) at the back. The cheque had been endorsed for payment to one Joseph Mtembuzi but it seems that when Mtembuzi presented it the bankers refused to give him the money and said that the owner himself had to come because the amount C was too big. The owner then came and it was the appellant. In the event even the appellant was not paid the money for, in the meantime, a telephone call had come from the Prime Minister's Office instructing the bank to dishonour the appellant's cheques. There are four identical signatures of the owner on Exh. P8(41). Since that owner was the appellant, I find irresistibly that the signatures were written by him. There are then D before me six of the twelve stolen cheques and the payee's signatures thereon are absolutely identical to the signatures on Exh. P8(41). I am entitled to make that comparison by virtue of the provisions of s. 75(1) of the Evidence Act, 1967 and in doing so I do not require the assistance of an expert. In the words of Ratanlal and E Thakore (The Law of Evidence, 14th ed., p. 171), commenting on the equivalent s. 73 of the Indian Evidence Act, 1872:

> The Court may compare the disputed signature, writing or seal of a person with signatures, F writings or seals which have been admitted or proved to the satisfaction of the Court to have been made or written by that person. A Court may rely upon its own comparison of the signature, writing, or seal, unaided by expert evidence. G

The signatures on the six cheques are simple and short and the same in all respects. They are in turn identical in every respect to the owner's signatures on Exh. P8(41). I am satisfied that the appellant signed the six cheques and therefore that they came into his possession. H

Further, there was the renting and operation of P.O. Box No. 793, Dodoma. It came from PW 12 (he should actually have been PW 11, there being no PW 10) that Box was being rented by the appellant in the name of Omari Saidi Mohamedi since 1979 or late 1978. PW12 tendered the 1980/81 Post Office Directory and pointed to the name of Omari Saidi Mohamed at page 254. As stated earlier, I have only seen the cover of I the directory (Exh. P13), but the trial magistrate who saw it

stated that the name appeared there. We then have six Post Office green cards (Exhs. A P6 A - F) on which registered articles were collected through P.O. Box No. 793, Dodoma. These are in the name of Omari Saidi and they bear signatures similar to those on Exh. P8(41). Finally, there is the appellant's undisputed THB Savings Account Book (Exh. P9) and this gives the appellant's address as P.O. Box 793, Dodoma. I am B satisfied that the appellant was the renter of the Box. Now, the payment vouchers available to me, except one, show that the cheques were being dispatched to Omari Saidi through P.O. Box No. 793, Dodoma. I am again satisfied from this that the cheques were being sent to the appellant and that he received them. C

As already seen, however, the cheques were forgeries and the appellant had no claim of right to any of them. On the analogy that a cheque can be imported into a charge by virtue of its being money within the meaning of that term under the Penal Code, I am of the view that the

appellant was properly convicted as charged on the counts of theft, but D I confine these remarks to those instances where I was able to see and examine the cheques. I did not see the cheques in counts 29, 32, 33, 34, 35 and 36 and on those counts the appellant is acquitted. I saw the cheques in counts 25 (Exh. P3A), 26(Exh. P3B), 27 (Exh. P3C), 28 (Exh. P3D), 30 (Exh. P3F) and 31 (Exh. P3G). On those E counts the appeal is dismissed and the sentences are confirmed.
Appeal dismissed.
1983 TLR p410
F
[zRPz]EDWIN SIMON MAMUYA v ADAM JONAS MBALA 1983 TLR 410 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

November 3, 1983
CIVIL CASE 19 OF 1983 G
Flynote
Contract - Written contract - Variation of terms must be in writing. H
Contract - Variation - Consideration - Agreement which varies terms of an existing contract must be supported by consideration.
Contract - Waiver - Waiver of contractual rights - Need not be supported by consideration. I
Contract - Mesne profits - Assessment of - Rent Restriction Act, 1962.
1983 TLR p411
LAGAKINGIRA J
-Headnote
The plaintiff bought a house from the defendant. According to the agreement, which was A in writing, the defendant was to deliver the house to the plaintiff at the end of September, 1982. Despite the fact that the plaintiff paid the purchase price in full before the agreed date of delivery of the house the defendant did not perform his part of the contract until on the 20th August, 1983 after the former had filed a suit in court praying B for an order of specific performance, and mesne profits at the rate of Shs. 5,000= per month from October 1982 to the date of judgment and costs of the suit. The defendant argued in court that there was a collateral, oral, agreement between the parties varying the terms of the agreements, permitting him to remain in the premises up to February. He further argued that from February 1983 he had sought to deliver possession of the C house but that the plaintiff had refused or neglected to take up the same. The Court considered the defence of variation of contractual terms by a collateral agreement and the principle to be followed in assessing mesne profits. D
Held: (i) Where a contract is in writing, its terms can only be varied in writing;
(ii) the agreement which varies the terms of an existing contract must be supported by consideration; E

(iii) a mere forbearance or concession afforded by one party to the other for the latter's convenience and at his request does not constitute a variation, but operates as a waiver which need not be supported by consideration;

(iv) Mesne profits or damages are recoverable in addition to specific F performance when a party delays to perform his part of the contract without reasonable cause;

(v) the delay of the defendant to deliver possession of the house from February 1983 until August 1983 was wilful and without justification;

(vi) in assessing mesne profits the court may be guided by the provisions of G section 4(1)(c) and 4(2)(a) of the Rent Restriction Act, 1962 and circumstances surrounding, or relating to, the suit premises.

Case Informaiton

Judgment for the plaintiff. H

Cases referred to:

1. Pira & Others v Mawji [1930] 1 TLR (R) 457.
2. Robertson v Minister of Pensions [1949] 1KB 227.
3. Combe v Combe [1951] 1 All E.R. 767
4. Alidina v Globe Mercantile Corporation Ltd. [1968] E.A. 114. I
5. Jones v Gardiner [1902] 1 Ch. 191.

1983 TLR p412

LAGAKINGIRA J

6. Shah. v Abdulla [1964] E.A. 742. A
7. Diamond v Campbell-Jones & Others [1960] 1 All E.R. 583.

G. Alimwike: Amicus curiae.

[zJDz]Judgment

Lugakingira, J.: By an agreement in writing dated 7th June, 1982 and in consideration B of the sum of Shs. 300,000/= the defendant agreed to sell and the plaintiff agreed to purchase a residential house on Plot No. 209A, Block "X", Hazina area, in the municipality of Dodoma. It was a term of the agreement that the purchase price was to C be paid in instalments, the final instalment to be made in September 1982, and the defendant was to hand over the house at the end of that month. The plaintiff duly paid the purchase price, the final payment being made on 1st September, 1982. However, the defendant never delivered up the house. The plaintiff therefore commenced this action on 9th June, 1983 praying for an order of specific performance, mesne profits at D the rate of Shs. 5,000/= per month from October 1982 to the date of judgment and costs of the suit.

In his written statement of defence the defendant admitted the averments regarding the existence of the agreement and the mode and fact of payments. His defence was E two-fold, namely, that there was a collateral agreement whereby the plaintiff permitted him to remain in the house up to February 1983, and that he had since sought to deliver possession of the house but the plaintiff had neglected or refused to take up the same. It follows from the foregoing that the basic issues are whether there was a variation of the F terms as regards the time of performance and whether there was a tender of performance which was refused. On 20th

August, 1983, while judgment was reserved, the defendant handed over the house to the plaintiff. Both parties were unrepresented.

It is common practice to vary the terms of a contract by a subsequent agreement. This G may be done either orally or in writing save that where the contract is in writing or where the law requires it to be in writing, any variation there to must similarly be in writing.

In the instant case the agreement of 7th June 1982 did not have to be in writing: see Pira H & Ors. v Mawji (1930), 1 TLR (R) 457. But since it was, its terms could only be varied in writing. Let us now see the position.

The defendant averred in para. 1 of the written statement of defence that there was an oral agreement extending the time for surrendering the house to February 1983. But his evidence in court suggested that there was a written agreement. He testified that on 24th I August his mother with whom he was staying in the suit premises died. When the plaintiff

turned up to make the final payment he asked the plaintiff for permission to continue in A occupation and wind up the funeral rites. The plaintiff allegedly agreed. However, in October or November the plaintiff went to claim the house and told the defendant that if he required a further extension they had to see their lawyer, Mr. Alimwike. They therefore went to Mr. Alimwike and after discussion the plaintiff took out a piece of B paper ("kikaratasi") on which they wrote and agreed that the defendant would hand over the house in February 1983. Thereafter, the defendant never saw the plaintiff until he was served with the summons in this case. On the other hand, the plaintiff denied giving any extension. The court therefore called Mr. Alimwike for an independent version. He C confirmed that the parties turned up in his chambers and argued for some time. He finally intervened and told them they could vary the terms of the contract. At this juncture the plaintiff asked the defendant to state when he would hand over the house. The defendant replied, "February". Mr. Alimwike then saw the parties write something, D but he did not involve himself in that and did not know what they wrote.

I find from the foregoing that there was no written agreement to vary the contract. I say so because such an agreement could not be constituted by a mere "kikaratasi", as the defendant put it. It had to be formal and witnessed like the contract, Exhibit P5. The defendant did not even have a copy of the "kikaratasi", so his evidence on the matter E was purely oral and inadmissible. I will also add, although it is not necessary to do so, that even if there was a written agreement it could not have operated to vary the contract since, on the defendant's evidence, it was exclusively to the defendant's advantage. The F plaintiff had nothing to gain; hence there was complete absence of consideration. It is stated in Chitty on Contract 24th Ed., para. 1378:

> The agreement which varies the terms of an existing contract must be supported by consideration. In many cases, consideration can be found in the mutual abandonment of G existing rights or the reciprocal conferment of new benefits by each party on the other .... But an agreement which is made exclusively for the benefit of only one party, or an agreement

which, although capable of benefiting both parties, is actually made for the benefit of one alone, will not be effective to vary the contract, since no consideration is present. H
That indeed, is what appears to have been the position here. From all considerations, therefore, the defendant's reliance on the existence of an agreement varying the terms of I the original contract is bound to fail and fails.
1983 TLR p414
LAGAKINGIRA J
That, however, does not conclude the issue. There can be no doubt that the plaintiff, A even if reluctantly, did accede to the defendant's request to remain in the house till February. I reach that view having regard to the independent testimony of Mr. Alimwike. There was thus a forbearance or a concession on the part of the plaintiff, and although that did not amount to a variation one is entitled to say that the plaintiff had by B his word and conduct waived his rights under the contract. In such circumstances equity intervenes to hold a person to his word. The same para. 1378 in Chitty hence goes on to state:

A mere forbearance or concession afforded by one party to the other for the latter's C convenience and at this request does not constitute a variation, but operates as a waiver. Such a forbearance or concession need not be supported by consideration, and can be made orally even when the contract is one which is required to be evidenced in writing. D

In Robertson v Minister of Pensions [1949] 1 KB 227 Denning, J. (as he then was) similarly said:

.... If a man gives a promise or assurance which he intends to be binding on him and to be E acted on by the person to whom it was given, then, once it is acted on he is bound by it.

In Combe v Combe [1951] 1 All E.R. 767 Denning, L.J. (as he then was) again said, at p. 770: F

The principle, as I understand it is that where one party has, by his words or conduct, made to the other a promise or assurance which was intended to affect the legal relations between G them and to be acted on accordingly, then, once the other party has taken him at his word and acted on it, the one who gave the promise or assurance cannot afterwards be allowed to revert to the previous legal relations as if no such promise or assurance had been made by him, but he must accept their legal relations subject to the qualification which he himself had so H introduced, even though it is not supported in point of law by any consideration, but only by his word.

I am satisfied that the plaintiff agreed to postpone delivery of possession to February. The defendant, although without furnishing consideration, took the plaintiff at his word I and so continued to occupy
1983 TLR p415
LAGAKINGIRA J
the house. On the authorities cited, which I respectfully adopt, the plaintiff cannot be A allowed to resile from his concession and to insist on his rights as stipulated in the contract. I think what is important now is to determine the date in February on which the handover was to be done. The written statement of defence speaks of "February 1983". In evidence the defendant said, "in February 1983". Mr. Alimwike spoke of B "February". In considering these

expressions, and doing my best to give them meaning, I think the intention of the parties was that delivery takes place on 1st February, 1983.

I now come to the second issue. Did the defendant offer to hand over the house? Once again I find the evidence elusive. In para. 2 of the written statement of defence the C defendant asserted that he had since February, 1983 "been all along for the plaintiff to go and take possession of the premises". In evidence he also stated: "I did not see the plaintiff ... until I was served with the summons in this case". On the other hand, the plaintiff stated that when delivery was due he went to see Mr. Alimwike but the D defendant could not be found. In the end he decided to bring this suit. Mr. Alimwike confirmed that the plaintiff met him and complained that the defendant had not handed over the house. Subsequently, Mr. Alimwike met the defendant and communicated the complaint but the defendant replied that the plaintiff had not turned up to take possession E of the house!

Once parties bind themselves in contract for lawful consideration they are obliged to perform their respective promises. But a party would be absolved from liability if he offered to perform his part of the agreement and the other party wilfully refused the offer. F Nevertheless, for there to be an offer in law it must inter alia be unconditional, it must be communicated, and it must be made in such circumstances as to leave no doubt that the party offering to perform is presently able and willing to do so: See generally s. 38 of the Law of Contract Ordinance, Cap. 433 and Alidina v Globe Mercantile Corporation Ltd. [1968] E.A. 114. I think what calls for consideration in the instant G case is whether there was an offer at all, for if there was none, the other matters do not rise. I have just stated, and I think demonstrated, that the evidence is elusive. It does not indicate how the defendant offered to hand over the house. In his own words, he was "waiting for the plaintiff to go and take possession of the premises". In other words, H at no time did he, himself, take any step to hand over the house or manifest any intention of doing so but left it to the plaintiff to take the initiative. Admittedly, the contract did not stipulate the manner in which the handing over was to be done. Nevertheless, the Court can discern the intentions of the parties from their conduct and I the surrounding circumstances. First, we have seen that in their negotiations

and wrangles the parties sought the assistance of Mr. Alimwike. One would then expect A that the offer to hand over the house would be made through Mr. Alimwike. Secondly, from October the defendant had been in occupation of the house free from any liability for rent. In these circumstances it is patently unreasonable to expect the plaintiff to go on his bended knee pleading for the house. Interestingly, the plaintiff did in B fact plead with the defendant but the latter threatened him with assault if he ventured at the premises! The parties are physically unmatched. The defendant is athletic and seemingly equal to his threat. I am satisfied that there was no offer to hand over the house. Indeed, the defendant could not at any time have been able and willing to fulfil C such an offer for when this Court visited the premises on 10th August, 1983 it found the defendant's family very much there. In the final analysis, I find that the defendant breached the contract for which an order for specific performance is the remedy.

The plaintiff also prayed for damages in the form of mesne profits from October 1982 to D the date of judgment. Generally speaking, mesne profits or damages are recoverable, in addition to specific performance, when a party delays to perform his part of the contract without reasonable cause.

In Jones v Gardiner [1902] 1 Ch. 191, 195, Byrne, J. said: E

Jacques v Miller (1907), 6 Ch. D. 153) is a distinct authority for giving damages against a vendor, in addition to specific performance, in respect of delay caused by wilful refusal to carry F out a contract, and for the measure to be applied in ascertaining the damages, namely, such damages as may reasonably be said to have naturally arisen from the delay, or which may reasonably be supposed to have ben in the contemplation of the parties as likely to arise from the partial breach of contract. G

See also the Kenya case of Shah v Abdulla [1964] E.A. 742 where it was held that there is no impediment in the fact that a conveyance has been completed to an action by a purchaser for damages for delay. On the measure of such damages it is again stated in Chitty para. 1588: H

If the vendor or lessor delays in completion (not because of a defect in title), the normal measure of damages is the value of the use of the land for the period of the delay, viz. usually its rental value. I

There is justification in the instant case for awarding damages. The

1983 TLR p417

LAGAKINGIRA J

delay was wilful. However, in view of what I have said about waiver, I am of the view A that damages can only be awarded from 1st February. In view, also, of the fact that the plaintiff took possession of the house from 20th August, the damages cannot be recovered beyond 19th August. I will now go into the assessment.

The plaintiff claimed Shs. 5,000/= per month, saying that even this was concessionary. B He claimed that the house was built as a lodging comprising twelve rooms. He said that if he were in possession he could have rented each room at Shs. 70/= per day and thus make Shs. 25,200/= per month from the entire house. It was out of kindness, he said, that he was claiming Shs. 5,000/= only per month. I visited the house. It is not built as a C lodging; it is a single family dwelling. It has six bedrooms, which include a self contained master bedroom, and the remaining rooms comprise of three unmistakable sitting rooms, a store, a kitchen, a bathroom and a W.C. Its design and facilities are such that even if it were rented out it could conveniently be rented to a single family D unless it were significantly modified. I can see no basis for the plaintiff to think otherwise. Nevertheless, it is settled that a purchaser may claim the loss of profit he intended to make from a particular use of land, e.g. by converting a building into flats and offices, if the vendor had actual or imputed knowledge of special circumstances showing E that the purchaser intended to use the land that way: Diamond v Campbell - Jones & Ors. [1960] 1 All E.R. 583. In the instant case the agreement between the parties is silent about use. But in para. 9 of the plaint the plaintiff stated that he purchased the suit premises for his own use. While testifying; he also conceded that he had no evidence to F show that the house was intended to be a lodging. On the other hand, the letter offering the defendant a right of

occupancy over the plot of land, exhibit Cl, and which was in the plaintiff's possession from the date of the agreement, stipulates the use as "Residential: Use Group A, Use Class (a) as defined in the Town and Country Planning (Use Class). G
Regulations 1960. "Regulation 2 of these regulations defines "Use Group A, Use Class (a)" as:

Individual dwelling houses designed for use as dwelling by single families together with such H outbuildings as are normally used there with, but not including dwelling houses designed for occupation by more than one family ....

From all available evidence, therefore, the defendant knew that the house would be used as a single family dwelling and there is no evidence that the plaintiff indicated that he I intended to use the house differently.
1983 TLR p418
LAGAKINGIRA J
Damages which a party may receive are such as may be supposed to have been in the A contemplation of both parties at the time of contracting. It follows, in my judgment, that the plaintiff can only receive damages for being denied the use of a single family dwelling.
The difficulty which arises is that the house is new and has never been rented. We B therefore do no know its rental value. I took it upon myself to determine this having regard to the following facts and circumstances. The defendant stated that he constructed the house at a cost of Shs. 380,000/= but sold it for less to liquidate some pressing liabilities. He is also paying an annual ground rent of Shs. 200/=. He did not C pay a premium for the right of occupancy and it appears that local rates are yet to be assessed and imposed. In accordance with the provisions of s. 4(1) (c) of the Rent Restriction Act, 1962, as amended, the standard rent would therefore be the total of an amount equal to fourteen percentum of the cost of construction and the ground rent. This, I think, comes to Shs. 53,228/= p.a. or Shs. 4,435/66 p.m. It is interesting that his D figure is not very far from the Shs. 5,000/= claimed by the plaintiff. Certain factors have then to be considered. When I visited the premises I found that they were wanting in some respects, although undoubtedly attractive. Electrical wiring was already done E but power was not yet connected. A portion of the rear section had no ceiling board. The roofing required final touches. The cesspit was unfinished. There was water. The fronting road was yet to be made up. The neighbourhood, Hazina Area, is also not so fashionable. Against these factors one has also to consider the following. The house is in fact habitable as demonstrated by the presence of the defendant's family therein. Besides, there is an acute shortage of housing in town and this has to be matched with F the prevailing inflationary tendencies. Considering all these factors and having in mind the provisions of s. 4(2)(a) of the Act aforesaid, I would for the purpose of this judgment fix the rent at Shs. 3,000/= per month. As stated earlier, the plaintiff can be paid mesne G profits from 1st February to 19th August, 1983. It works out to Shs. 19,900/=.
In conclusion, therefore, this suit succeeds and there will be an order for specific performance despite the informal handover. The plaintiff is also awarded mesne profits H of Shs. 19,900/= together with costs of the suit. It is to be hoped that it will not require further litigation for the purpose of transferring the title over the land.
I Judgment for the plaintiff.

1983 TLR p419
A
[zRPz]GWASA BUNZINYA v REPUBLIC 1983 TLR 419 (HC)

Court High Court of Tanzania - Mwanza
Judge Katiti J

October, 1983
CRIMINAL APPEAL 21 OF 1983 B
Flynote
Criminal Law - Forcible entry - Elements of - S.85 Penal Code.
-Headnote
The accused Gwasa Bunzinya was originally tried, convicted and sentenced to pay a fine of 500/= or six months' imprisonment by the Shanga Primary Court in Ngara District following a charge and prosecution for forcible entry to complainant's land contrary to s. C 85 of the Penal Code. The court also imposed orders for compensation to the tune of 1,500/= to be paid by the accused to the complainant.
The accused had conceded entering the complainant's land but had argued that the property in question had been abandoned and was bona vacantia. No evidence was led by the prosecution to prove that the accused used any force or violence to enter the D land.
The District Court dismissed the accused's appeal but set aside the order for compensation. The accused was still not satisfied hence this appeal.
Held: (i) Section 85 of the Penal Code was not intended to take care of every trespass E to land but only those primarily concerned with the preservation of public tranquillity in matters pertaining to land and accompanying or concomitant processes of changes of ownerships or possessions; F

(ii) in order for s. 85 of the Penal Code to operate the following elements must be established beyond reasonable doubt:

(1) the accused/appellant must have entered the said lands or tenements in question;

(2) the said accused/appellant must have applied violence and the said violence G must have been for purposes of taking possession of the said lands or tenements;

(3) unless the said lands, or tenements, are in the custody of the accused's servants or bailiff, it is immaterial whether the said accused/appellant is entitled to enter H the lands or not;

(iii) in this case it has not been proved beyond reasonable doubt that the accused entered the shamba in a violent manner in order to take possession of the said shamba.
Case Information
Appeal allowed. I
1983 TLR p420
KATITI J

No cases referred to. A

[zJDz]Judgment

Katiti, J.: This is an appeal whose compass coverage is a narrow one. The undisputed facts are as follows. PW.2 Baseka s/o Bunzinya had had occasion to entrust all his lands or tenements to the Complainant Zubel s/o Rukele PW. 1, before he went on a B long errand for the treatment of his child. The accused/appellant, a brother of PW.2, entered the said Shambas that had been entrusted to the Complainant, and began plucking and consuming the fruits thereof, and hence the complaint by the complainant PW.1. The appellant's defence was that, he entered the shamba because it had been C abandoned by his brother, and that nobody was in control, and further conceded that his brother PW2, could have his shamba back.

Shanga Primary Court found the appellant guilty as charged and imposed a fine of Shs. 500/=, or Six months imprisonment, following the same with an order that the same D appellant compensate the complainant to the tune of Shs. 1,500/=. The appellant's appeal to the District Court was partly dismissed, as while the conviction and fine imposed were upheld, the compensation order was set aside for lack of foundation on which it could stand.

The appellant has appealed again. The prosecution and defence cases juxtaposed, one E discerns no serious conflict between them, in general terms. As a matter of fact, nowhere did the appellant deny entering the Shambas/tenements in question, he only qualified his such entry that, the same property hitherto belonging to his brother had been abandoned, and was bona vacantia. I think, I dare say, it was the apparent simplicity F with which the appellant seemed to agree with the prosecutions general evidence that drove both the Primary and District Courts, to easily enter conviction, and/or uphold the same. I think the two lower courts had a problem of short-sightedness, in easily thinking the case had been proved beyond reasonable doubt. While indeed trespass to G land, which the appellant's conduct, inter alia was, is a wrong, it is not the intention of the Section to take care of every, and any trespass to land. The Section is afraid of treading on slippery grounds. Section 85 which is worded carefully, reads. H

> Any person who, in order to take possession thereof, enters on any land or tenements in a violent manner, whether such violence consists in actual force applied to any other person, or in threats, or in breaking open any house or in collecting an unusual number of people, is I guilty of the offence termed "forcible entry".

1983 TLR p421

KATITI J

It is immaterial whether, he is entitled to enter on the land or not, provided that a person A who enters upon lands, or tenements of his own, but which are in custody of his servant, or bailiff, does not commit the offence of forcible entry.

Having read and reasonably digested the above Section, it seems to me, that before conviction under it is successfully achieved, the following elements must be established B beyond reasonable doubt. They are:

(1) The accused/appellant must have entered land/s, or, tenements in question, and

(2) The same said accused/appellant must have applied violence and whether such C violence consists in actual force applied to any or other person, or in threats or in breaking open

any house or in collecting an unusual number of people, the same such violence must be for purposes of taking possession of the same said lands or tenements. D

(3) Unless the said lands, or tenements, are in the custody of the accused's servants or bailiff, it is immaterial whether the said accused/appellant is entitled to enter the lands or not.

This section, it may be discerned is not so much concerned with the unlawful E consumption, if any, of fruits, produce or products of the said lands or tenements involved, as that may be taken care of by another section, it is primarily concerned with the preservation of public tranquillity in matters pertaining to land and accompanying or concomitant processes of changes of ownerships, or possessions. In other words, it is a F law and order section, decrying applications of violence, disturbances of tranquility in land entries. If with respect, we apply the above elements to the instant case we shall not fail to note that, while we have concession that, the appellant did enter, there is hardly evidence showing whether the appellant applied violence in entering the same said Shamba. All we have from the complainant, at best an eye witness, is this: G

Namshitaki Gwasa Bunzinya kwa kuniingilia katika Shamba nililoachiwa na baba yangu mdogo Baseka Bunzinya. H

With considerable and far reaching efforts, I have failed in the name of Justice, to read application of violence or even threats thereof, by the appellant in entering and taking possession of the questioned Shambas from the evidence adduced. The Swahili word I "Kuingilia" that the complainant chose to use in describing the appellant's conduct does not

in my view, carry or bear the violence content contemplated by the provisions above A reproduced. It carries the mildness that the Section is not worried about. Even going by the complainant's own amplification that - hata Katibu Kata alifika waliona walivyokata ndizi", I fail to read the same to mean that the appellant entered the said B Shamba in a violent manner, in order to take possession of the same shamba. I find myself finally succumbing to my conviction, that the case was not proved beyond reasonable doubt against the appellant. The appeal is therefore allowed, conviction quashed and sentence set aside. It is hereby directed that the fine imposed, be refunded, if paid.

C Appeal allowed

D

[zRPz]REPUBLIC v TILUSUBYA MWISHAKI AND 2 OTHERS 1983 TLR 422 (HC)

Court High Court of Tanzania - Mwanza
Judge Katiti J

August 10, 1984
CRIMINAL REVISION 55 OF 1983
Flynote

Criminal Law - Abusive language - Use of abusive language in such a manner as is likely to cause a breach of the peace - S. 89(1)(a) of the Penal Code Cap. 16 of the Laws. E
Criminal Practice and Procedure - Compensation - Whether proof of the use of abusive language under s.89(1)(a) of the Penal code is sufficient for the court to impose compensation under s. 176 of the Criminal Procedure Code Cap. 20 without proof of F material loss or personal injury.
-Headnote
The accused Tilusubya Mwishaki was charged jointly with Musegena Mwishaki and Salima Mwishaki for using abusive and obscene language against the complainant. The G District Court of Ukerewe convicted the three accused and sentenced the 1st accused who was a juvenile to six strokes of corporal punishment and a fine of 100/=, and the 2nd and 3rd accused were sentenced to one month imprisonment and a compensation of 150/= each to the complainant or distress in default. No appeals were preferred hence this revision. H
Held: (i) The obscene insults inflicted upon the complainant seriously defamed, character assassinated and morally wounded the complainant and subjected her to excruciating mental anguish;

(ii) under s. 176 of the Criminal Procedure Code the compensation awardable I by a criminal court is confined to circumstances where the
1983 TLR p423
KATITI J
victim has suffered either material loss or personal injury and that substantial A compensation is recoverable by the victim of the offence in a civil suit;

(iii) under this qualification, an award of compensation cannot be made in the absence of proof of value of the material loss otherwise the victim of the offence may be over - or under compensated.

(iv) in this case there was no material loss or any evidence of physical loss or any B evidence of physical injury to the complainant to justify the application of s. 176 of the Criminal Procedure Code.
Case Information
Order accordingly.
No case referred to. C
[zJDz]Judgment
Katiti, J.: Tilusubya s/o Mwishaki, Musegena d/o Mwishaki, Salima d/o Mwishaki standing in the order of 1st, 2nd and 3rd accused, were before Ukerewe District Court charged for allegedly jointly and together, insultingly and obscenely telling the D complainant as follows:

Malaya, Unalala na mtoto wako, unavaa magunia, unatembea uchi; allegedly in such a E manner as was like to cause a breach of peace. The trial culminated into the conviction of the accused, and the sentencing of 1st accused a juvenile, to six strokes of corporal punishment; and fine of Shs. 100/= or one month's imprisonment in respect of the 2nd and 3rd accused. The 2nd and 3rd accused were further ordered most probably under section 176 of Criminal F Procedure Code Cap. 20 to pay compensation of Shs. 150/= each or distress in default. No appeal has been preferred by any of the accused persons.

When the case came before my learned brother Judge, the said Judge ordered revision G observing, as follows:

To review the order of compensation purportedly made under section 176 of the Criminal procedure Code. There does not seem to be any material loss, or personal injury suffered by H the complainant here in consequence of the offence committed.

Signd.

J.5/8/1983 I

1983 TLR p424

KATITI J

In my understanding of the charge and evidence the obviously obscene insults allegedly A inflicted upon the complainant meant, and I have no doubts they did, that she was having sexual intercourse with her children, that she was going nude, naked, and that she was moving about in wretched and wrecked clothing. I have no doubt she was seriously defamed, character assassinated, morally wounded, and I cannot vouch that she B escaped excruciating mental anguish. A breach of peace was imminent. I shall therefore allow myself to surmise that it is for this reason that the trial magistrate ordered payment C of compensation by the accused. It is unfortunate that the trial magistrate made no mention of the legal authority under which he was ordering payment of compensation, but like my learned Brother Judges, I shall again allow myself in the absence of the contrary, the confident unrestricted liberty to presume that the trial magistrate was acting under the provisions of Section 176 of the Criminal Procedure Code Cap. 20, in awarding the said compensation. D

The question that is posed for consideration is whether the victim of abusive language under circumstances contemplated by Section 89 (a) of the Penal Code Cap. 16 is liable for reparations under the provisions of Section 176 of the Criminal Procedure Code Cap. 20. It seems to me that Section 176 of the Criminal Procedure Code does with some clarity state circumstances under which compensation may be ordered. The E precedent for ordering compensation under that section seems to be as follows:

(a) That the victim of the crime must have suffered either material loss, or personal F injury, in consequence of the offence committed and charged, and

(b) That substantial compensation is in the opinion of the court recoverable by the victim of the offence in a civil suit. G

I shall untimorously venture to say that under the Section at hand, the compensation awardable is confined within the above articulated limitations, and that is the victim of the crime may be compensated by a Criminal court where in consequence of the offence the H victim has suffered either material loss, or personal injury and that, substantial compensation is recoverable in a civil suit. These words, or phrases of limitation are not without difficulty of interpretation. In cases of offences which cause material loss, the difficulty may not be obvious, for the value of property involved for instance in offences such as theft, malicious damage to property, arson or obtaining money by false I pretences, or such quantified losses which are the natural results of wrongs committed, may form the basis of

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KATITI J

assessment of the quantum of the compensation ordered, or to be ordered by the court. A Under this qualification it would appear that an award of compensation cannot be made in the absence of proof of value of the material loss, otherwise, either, the crime victim is under - compensated and therefore prejudiced thereby, or he/she is over compensated, punitively prejudicing the accused. B

My worry is acute, when it comes to aspects of compensation for personal injury, where even in Civil litigation, damages in respect of the same, are notoriously difficult to assess, and impossible to standardise. But no competent authority has however come up against the awarding of compensation in such cases. Such cases include assaults, causing C grievous bodily harm, unlawful wounding etc. But it should be observed that in these cases, bodily harm is a common denominator, and the prerequisite for conviction, in as much they bear an element of personal injury, a qualification inter alia for the application of section 176 of the Criminal Procedure Code. But, I might add to pre-empt self D deception, that also in other offences such as rape, indecent assault, where the victim may indeed suffer harm, but where such harm is not essential for the offence to be consummated, compensation has more often than not been ordered, or awarded. What appears to be a common denominator in the above two situations, is not personal injury, but generally a physical violation of a person's sovereignty, but differences lying in E variations in severity of illegal acts complained of. The above only shows the courts liberal attitude or stand, in applying section 176 of the Criminal Procedure Code Cap. 20.

In this case, there was no material loss, or at least it was not established. Further I have F not laid my hands, with all the anxiety, on any evidence that shows, that the complainant suffered physical bodily injury. While I am prepared to concede, that, the insults were obviously defamatory, it would be speculative of me to go where the complainant took no initiative to show the same. The complainant told the court below that, the words were unpleasant to her, but I would hastily opine, that the sheer G unpleasantness of a defamatory statement, and perhaps the annoyance accompanying the same, cannot amount to personal injury in the context of Section 176 of the Criminal Procedure Code Cap. 20. Even if the same amounted to personal injury, and I am sure it did not, the court should in my view shudder to avoid compensation in circumstances H such as these. I should imagine, this because first, the trial court is starved of evidence as to the extent of injury - the extent to which the "substantial" amount of compensation awardable, is pegged or tagged for lack of medical report. I experience no surprise, or inhibitions on this aspect, because, the charged section, is not so much concerned with I the

extent of injury to the complainant, if any, as it is with the consequences of the conduct A complained of, to law and order, and public tranquillity. Secondly, in the circumstances of this case, defences that would in Civil litigation reduce damages, are not relevant, nor readily available to the accused, nor within reach of the court, to supply material to the same said court, for making its mind, whether or not in its opinion, substantial B compensation in the circumstances of the case, would be awardable in a Civil Suit. I hope I am not going too far

afield to demonstrate my fears, if I envisage a situation, which to all intents and purposes would be applicable here, where a statement complained of is proved beyond reasonable doubt, to have transgressed the charged C section, and hence criminal liability, but is at the same time a true, and fair comment, and therefore a defence in civil defamation proceedings. For the above reasons, I do not think, the circumstances of this case, did justify the application of Section 176 of the Criminal Procedure Code Cap. 20, because of lack of proof of personal injury, and D absence of material upon which to base the decision whether substantial compensation as contemplated by the Section is in the circumstances of the case awardable. Further to apply section 176 of the Criminal Procedure Code in the circumstances of this case would condemn the accused unheard on certain defences that in Criminal proceedings E may not be relevant, but are admissible defences in civil litigation. The compensation order is hereby set aside.

Order accordingly.

1983 TLR p426

F

[zRPz]ELIAS MBALAGA v REPUBLIC 1983 TLR 426 (HC)

Court High Court of Tanzania - Dodoma

Judge Lugakingira J

June 18, 1982 G

CRIMINAL APPEAL 33 OF 1981

Flynote

Criminal Practice and Procedure - Jurisdiction - Whether a Primary Court can resume H jurisdiction for purposes of trial of an accused who elected and has not rescinded his plea to have the case transferred to a District Court - S.41(2)(b) of the Magistrates' Courts Act, 1963.

Criminal Practice and Procedure - Whether s. 32(2) of the Magistrates' Courts Act, 1963 I can apply to cure a jurisdiction error.

1983 TLR p427

LUGAKINGIRA J

The appellant Elias Mbalaga was originally charged and convicted of cattle theft before a A Primary Court in Mpwapwa District whereafter he was sentenced by the Primary Court to five years imprisonment. At the beginning of the trial, before the appellant had entered any pleas regarding the charge against him, he requested the court to transfer the case to the District Court because he intended to engage a counsel. Though the court B acceded to his plea it later entertained the case again requiring the appellant to enter his plea, which he did, and the court then proceeded to hear the case without taking into account appellant's plea to have the case transferred. During the trial the appellant declined to cross-examine prosecution witnesses and to defend himself. He however C reminded the court of his request. The court found the appellant guilty of the offence of cattle theft and sentenced him to five years of imprisonment. The appellant's appeal to the District Court failed as the court was of the view that by entering

his plea of not guilty when the charge was read to him for the second time the appellant had impliedly D submitted to the jurisdiction of the Primary Court. The appellant was dissatisfied and appealed to the High Court.

Held: (i) The provisions of s. 41(2)(b) of the Magistrate's Courts Act 1963 are mandatory and this is signified by the use of the term "shall"; E

(ii) the ingredients of s. 41(2)(b) are that the accused must elect to have the case transferred and such option has to be exercised before entering his plea, and the offence charged has to be one that is punishable by imprisonment for more than twelve months;

(iii) the effect of satisfaction of these ingredients is to remove from the Primary F Court the jurisdiction to try case;

(iv) even belatedly, the court can still transfer the case after the accused has entered his plea if it is clear that the accused has not abandoned his initial wish to have the case transferred;

(v) the errors, omissions and irregularities which s. 32(2) is intended to cure are G those that flow from the exercise of lawful jurisdiction;

(vi) where jurisdiction of the court has been taken away there is no trial as such, and therefore s. 32(2) can not apply as there is nothing to cure;

(vii) this appeal ought to succeed on the ground of want of jurisdiction. H

Case Information

Appeal allowed.

Cases referred to:

1. Andrea Kimbulu v R. [1968] H.C.D. no. 512. I
2. Hassan v R. [1970] H.C.D. no. 146.

1983 TLR p428

LUGAKINGIRA J

3. Salum Issa v R. [1970] H.C.D. 222. A

D. Mbezi for the appellant

V. Lyimo for the Republic.

[zJDz]Judgment

Lugakingira, J.: The appellant Elias Mbalaga was charged in the Primary Court at B Mpwapwa with cattle theft and, on conviction, was sentenced to five years' imprisonment. This is the second appeal.

The crucial issue in the appeal is one of procedure. When the charge was read over to C the appellant on December 15, 1979 he offered no plea but stated that he wished his case to be transferred to the District Court as he intended to engage counsel. The trial magistrate promptly acceded to the request and made an order transferring the case to the District Court. He then remanded the appellant in custody pending his trial. But for D unknown reasons, the case was mentioned in the Primary Court on January 2, 1980 when the charge was again read over to the appellant. On this occasion the appellant entered a plea of innocence. The case was mentioned again in the same court on five more occasions including March 5 when a hearing date was fixed for March 21. On this latter date we find an entry: E

Mlalamikaji: Mashahidi wamefika.

Naomba shauri lisikilizwe.

AMRI: Shauri litasikilizwa. F

The trial duly commenced. The complainant called five witnesses, including himself, and closed his case. The appellant throughout declined to cross-examine any of the witnesses. He was then called upon to defend himself but he again declined and reminded the trial magistrate of his request to transfer the case. The magistrate G adjourned the hearing to April 2 for summing up to the assessors. He did sum up on that date and conviction followed as earlier stated.

In his appeal to the District Court the appellant pointed out inter alia that his request for the transfer of the case had been refused. The appellate magistrate held that since the H appellant pleaded to the charge when it was read over for the second time, and never renewed his request for transfer, he had impliedly submitted to the jurisdiction of the trial court. He held further that there was in any case evidence to support the charge and the irregularity, if any, had not occasioned a failure of justice. He therefore upheld the I conviction and dismissed the first appeal.

Before this court the appellant was represented by learned counsel

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LUGAKINGIRA J

Mr. Mbezi. He advanced very pertinent arguments, including: A

(a) that the refusal or failure to transfer the case and to enable the appellant to be defended occasioned a failure of justice.

(b) that there was in any case no charge before the trial court following the order B of December 15 transferring the case; and

(c) but without prejudice, that the evidence was insufficient to support the charge.

Mr. Lyimo for the Republic, but with discernible uncertainty, replied that since no counsel had already been engaged, the irregularity occasioned no failure of C justice. He also submitted that the appellant contributed to the irregularity and his misfortune by his failure to renew his request for the transfer. He was finally of the view that there was sufficient evidence to support the conviction. In this judgment, I desire to dwell on Mr. Mbezi's first argument. D

After going through the record of the trial court I have come to the sad view that the said record is incomplete. There is also a misrepresentation of facts or a misconstruction of the appellant's wishes. I get all this from the unusual notes, headed "Maelezo ya E Hakimu", which the trial magistrate made on April 2, just before writing the "Mwongozo" for the assessors. He wrote, inter alia:

Tarehe 2/1/80 kabla ya mahakama hii haijahamisha shauri Mahakama ya Wilaya mshitakiwa aliamua kutoweka wakili tena na akasomewa shitaka lake mara ya pili akalijibu na kukana F kosa kuonyesha ishara ya kukubali mahakama hii na Hakimu wasikilize shauri hili (my emphasis) .... Tarehe 21/3/80 baada ya mashahidi wote toka Dodoma kufika, mshitakiwa G akaamua kusudi kumkataa Hakimu ili shauri siku hiyo lisisikilizwe na kuwafanya mashahidi warudi na kupokea malipo ya posho kutoka Serikalini bure. Hakimu akaamua kusikiliza shauri hili maana hakuona sababu yoyote ....

As the title to these notes, "Maelezo ya Hakimu" clearly indicates, the trial magistrate H wrote them to explain away what he had come to realise was a serious irregularity in the procedure adopted. First of all, nowhere in the proceedings of January 2 is the appellant on record "deciding" to dispense with the services of an advocate. The trial magistrate thought it fit to infer that "decision" merely because the appellant entered his plea without I open protest. The words I have emphasized

above are clear evidence of the magistrate's state of mind. Even then, he did not draw A the inference at the time of taking the plea but three months later when he was faced with the problem of concluding the hearing. The notes were therefore a self-cleansing exercise. Further, if there were grounds for inference, the learned magistrate should have realised that it was a wrong inference for on March 21, according to the notes, the B appellant still objected to being tried by him or by his court. Unfortunately, this objection too does not appear in the record of that date. I am satisfied that the appellant throughout wished his case transferred but the trial magistrate refused the transfer. I am therefore unable to agree that the appellant contributed to the irregularity. C

We may now look at the position in law.

Section 41(2)(b) of the Magistrates' Courts Act, 1963 provides as follows:

> (2) A Primary Court - D
>
> (a) .....;
>
> (b) if the accused person so elects, shall transfer to the District Court of the district for which it is established any proceeding of a criminal nature in which the accused is charged with an E offence punishable in the Primary Court by imprisonment for more than twelve months or, in the case of an adult, by corporal punishment.
>
> An election under this section shall be exercised before the accused pleads to the charge. F

These provisions are in my view mandatory and this is signified by use of the term "shall". Once an accused elects to have his case transferred and exercises that option before entering his plea and the offence charged is one punishable by imprisonment for more G than twelve months, the Primary Court has no discretion but to transfer the case. There are no other considerations. These requirements were present in this case. The appellant elected for the transfer; he did so before entering his plea; the offence of cattle H theft is punishable by imprisonment of not less than five years even in the Primary Court. The trial court was therefore bound to transfer the case as requested. Even at the belated stage after the appellant had entered the plea, the trial court could still have transferred the case for, as I have demonstrated, the appellant had not abandoned his initial wish. It was urged on me that by reason of section 32(2) of the Act above, the I decision of the Primary Court could not be interfered with if there was in fact no failure of justice. It was said that there would be no

such failure of justice if the evidence was sufficient to support the conviction. This A argument, seemingly, finds support in the decision of this court in Andrea Kimbulu v R. [1968] HCD n. 312. There were irregularities in that case including a refusal by the trial primary court to transfer the same. It was held by Seaton, J., as he then was, that the irregularities of procedure might not have been fatal to the convictions had the evidence B clearly indicated that the accused was guilty of the offences charged. There was no such evidence and the convictions were quashed. It is significant, however, that in the later case of Hassan v R. [1970] - HCD n. 146 the same judge observed that his remarks in the Andrea Kimbulu case were obiter in as much as in that case the C evidence was insufficient. He referred to this other decision in Salum Issa v R. (PC) Criminal Appeal NO. 698 of 1969 (MZ) (see[1970] HCD n. 222) where, having found it impossible to satisfy himself that there was no failure of justice, he held the proceedings a nullity and quashed Salum Issa's conviction. For similar reasons he held that the D proceedings in Hassan's case were irregular and quashed the conviction stating: "The Primary Court has no jurisdiction to try against the accused's wish". With respect, I share this latter view. As already stated the provisions of section 41(2)(b) are mandatory. And that in my view, goes to jurisdiction. I am of the respectful opinion that once the ingredients for a transfer are satisfied the effect is to remove from the Primary E Court the jurisdiction to try the case. The court cannot cling to the case and oblige the accused to be tried against his wish. Such procedure, being contrary to law, would amount to no trial at all; it would be a complete nullity. The question then is whether section 32(2) was intended to cure such a situation, to confer jurisdiction where F jurisdiction had been taken away. I think not. I think that the errors, omissions and irregularities referred to in the provision are errors, omissions and irregularities that may arise in the exercise of lawful jurisdiction. It is one thing to commit an error in doing that which is sanctioned, and there section 32(2) would apply; it is quite another to do that G which is prohibited. Where jurisdiction is taken away, there is no trial as such, and therefore nothing to cure, for, as it is said, quod contra legam fit, pro infecto habetur. The question of sufficiency of evidence is then irrelevant, for there is no evidence in law. I would add that if evidence were all that mattered, there could be no limit to the number and scope of illegal trials that Primary Courts could undertake and hide under the H umbrella of section 32(2). I am therefore of the settled view that this appeal ought to succeed on the ground of want of jurisdiction. On the other hand, if I were compelled to answer the issue, I would say that the evidence was insufficient. The prosecution case I throughout pointed to the possible defence of innocent receipt and this was never

disproved. The appellant's guilt had therefore not been proved beyond reasonable A doubt. Having reached these conclusions it is no longer necessary to consider Mr. Mbezi's second argument.

I allow the appeal, quash the conviction and set the sentence aside as well as the order for compensation. In view of what I have said about the lacuna in the evidence it would not be in the interest of justice to order a retrial. I direct the appellant's immediate B release from custody.

Order accordingly.
1983 TLR p432
C
[zRPz]REPUBLIC v HASSAN JUMANNE 1983 TLR 432 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

July 5, 1983
CRIMINAL REVISION 2 OF 1983 D
Flynote
Evidence - Confession -Involuntary confession made to a Police Officer under threat of being beaten this being only evidence - Whether trial court acted properly to base a E conviction on it.
Evidence - Admission - Admissibility of evidence under s. 34 B of Evidence Act - Whether signature of a deponent alone is sufficient for a written statement of a witness who is abroad to be put in evidence. F
-Headnote
This revision arose from trial and subsequent conviction of the accused of housebreaking and stealing by the District Court of Singida. The only evidence against the accused upon which the trial court based its conviction was a confession made by the accused to G a police sergeant during interrogation. The accused alleged that he was beaten severely and was threatened with further beating during interrogation unless he surrendered the stolen money. P.W.2 gave evidence supporting this allegation.
The trial court also admitted under s. 34B(2)(b) of the Evidence Act a written statement H signed by its author who was said to be in Uganda; the only factor guiding the admission of the said statement being the signature purporting to have been made by the author of the written statement.
Held: (i) A confession made involuntarily to a police officer cannot alone be the basis of I a conviction;
1983 TLR p433
LUGAKINGIRA J
(ii) the provisions of s. 34(B)2 of the Evidence Act are cumulative, therefore to A admit a statement in evidence under s. 34 (B) (2) (b) all the conditions set forth from paragraphs (a) to (f) must be satisfied;
(iii) in this case only the first two provisions, that is (a) and (b) were satisfied hence the statement was inadmissible.
Case Information
Conviction quashed B
No cases referred to.

[zJDz]Judgment
Lugakingira, J.: I admitted this case to revision upon realising that the accused's C conviction was not based on legal evidence. The accused was convicted of house-breaking and stealing, the evidence against him being a confession he made to police sergeants during interrogation as well as the police statement of one of the sergeants which was admitted at the trial. D
The accused said he was beaten hard during the interrogation. This was earlier deposed to by PW. 2 who said "The policeman told the accused that if he does not give the money he will be beaten. There and then the accused entered in his room and came out with Shs. 780/=". It is evident, therefore, that the confession was involuntary and could E not be acted upon. On the other hand, the trial magistrate purported to admit the statement of a sergeant who was said to be in Uganda under s. 34B (2)(b) of the Evidence Act. He thought that the signature of the deponent was sufficient for the statement to be put in evidence. With respect, he was wrong in taking that view. F
The provisions of s. 34 (B) (2) are cumulative and all the paragraphs (a) to (f) have to be satisfied. Hence, to admit the statement, it must be reasonably impracticable to call the deponent; the statement must have been signed by him; it must contain a declaration on liability for perjury; a copy must have been previously served on the accused; the G accused must have failed to serve a notice of objection within ten days; and, where the deponent cannot read, it must be accompanied by a declaration of the person who read it to the effect that it was so read. In this case the first two requirements only were satisfied. The statement was then inadmissible. H
It is thus clear that the accused's convictions had no legal basis, there being no other evidence to connect him with the offence. I therefore quash the convictions and set aside the sentences and order the accused's release from custody.
I Conviction quashed.
1983 TLR p434
A
[zRPz]REPUBLIC v NICAS LULENGA 1983 TLR 434 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

July 2, 1983
CRIMINAL CASE 12 OF 1982
Flynote
Criminal Practice and Procedure - Arrests - Accused arrested by surprise - Whether B entitled to resist arrest.
-Headnote
The accused Nicas Lulenga was charged with unlawful wounding of a Policeman one D/SM Paulo Ngeleja Kadonya on 11/7/81 with an arrow during an attempt by the C Police to arrest him. The Police had received complaint that the accused had threatened to shoot one villager

called Kanyamala with an arrow. Following a report that the accused was a dangerous character, the Police sent a contingent of six Policemen armed with various weapons to arrest the accused. The Police approached the accused's D house secretly and surrounded it apparently to surprise him. The accused being unaware of the nature and character of those purporting to arrest him chose to resist the forceful attempt to arrest him in self defence. In the encounter he shot one arrow at D/SM Kadonya who was hit in his buttocks but he himself got wounded by gunshot during his E attempt to run away from the invaders. He was arrested and charged for unlawful wounding D/SM Kudonya in his attempt to resist arrest.

Held: (i) In determining whether the arrest was lawful, the court does not also have to be satisfied that the accused was guilty of an offence;

(ii) where there is evidence that the police were acting as law enforcement F officers, the Court is entitled to assume that they were acting lawfully;

(iii) similarly, the accused need not know that the arrest is lawful; all he has to know is the intention to arrest him; G

(iv) in the absence of any independent witnesses to corroborate the claim by the prosecution that the accused was warned to surrender before any force was used, it cannot be stated with certainty that guns were or were not fired into the accused's house with or without warning; hence the accused must be given the benefit of doubt that he might have acted in self defence; H

(v) in law every person is entitled to defend himself and his property against unwarranted attack so long as he uses no more than reasonable force;

(vi) since the accused used an arrow to answer the might of a gun, it can not be I said that he exceeded himself in doing what he did.

1983 TLR p435

LUGAKINGIRA J

Case Information

Accused not guilty. A

Case referred to:

1. R.v Bentley [1850] 4 Cox 406.

C. Alimwike for the accused. B

[zJDz]Judgment

Lugakingira, J.: In this case the accused Nicas Lulenga was charged with unlawful wounding with intent to resist his arrest c/s 222(1) of the Penal Code. It was alleged that on 11/7/81, at Winza village in Mpwapwa District, the accused shot one D/SM C Paulo Ngeleja Kadonya with an arrow while the latter was endeavouring to arrest him for the offence of threatening violence. There was evidence that the Police at Mpwapwa had received a complaint that the accused had threatened to shoot one Kanyamala with an arrow. On 11/7/81 D/SM D Paulo (PW.1) set out with a group of five other askaris, as well as Kanyamala, to arrest the accused. They arrived at the accused's village around midday and surrounded the accused's tembe house, except the front. They were variously armed, having been prewarned that the accused was dangerous. They had also received information on arrival at the village that the accused was at home. E

According to PW.1 and P.C. Jumanne Mtunyungu (PW.3), they then identified themselves and ordered the accused to surrender along with his weapons. There was no response. PW.1 ordered one P.C. Boniface Ndinde to fire tear gas into the house. He did so. Shortly, a woman ran out of the house. Seeing this, PW.1 rushed to the front. As he did so he saw the accused emerge armed with a bow and arrow. He ordered him F to lay down his arms and surrender but the accused did not. Instead, he let fly his arrow and as PW.1 instinctively turned to avoid it, it landed in his left buttock and stuck there. Meanwhile the accused ran away and PW.1 fired his pistol in the air. G

Other askaris gave chase firing their guns but without success. He was pursued with a Land-Rover and finally shot in the right thigh about one kilometre away, according to PW.2, or 21/4 miles away, according to /Gideon Salehe (PW.3). He was put in the vehicle and taken to the village dispensary. Meanwhile, a villager, Ndogwe Mwalambalo (PW.4) had succeeded in removing the arrow from PW.1's buttock. He H was also taken to the dispensary. From the dispensary the accused and PW.1 were taken to Mpwapwa Hospital. PW.1 was hospitalised for five days.

The accused was subsequently charged with this offence.

The accused gave evidence on oath and called two witnesses. He said on that day he I was at home with his wife listening to the radio, his

wife busy cooking. Suddenly, shots rang out through the window and bullets hit the right A wall. His wife collapsed in terror and scrambled for cover under the bed. Just then a second shot rang out, again directed into the house. The accused said he then scrambled to his feet and rushed to the door to see what was afoot. The door was ajar. Just at the door he came face to face with a man, about four paces away, pointing a gun B at him. The accused ducked to take cover behind the door but before he could successfully do so, he was shot in the thigh. Instinctively he turned back, collected his bow and arrow, took aim at that man, who was then advancing into the house, and released the arrow. He saw it land on the man's buttock, for the man had suddenly C turned and saw the arrow shaft shake there with the impact. He then ran off limping but collapsed about sixteen paces from his house and was there handcuffed and taken away. As stated above, the accused called two witnesses. They were his brother-in-law who is serving a prison sentence and his elder sister. For reason I will shortly state, I do not D have to review the evidence of his brother-in-law (DW.1). His elder sister Maria Lulenga (DW2.), testified that her house is about fifty paces from the accused's. On that day she was at home and saw a group of about five armed strangers. They went up to the accused's house and immediately opened fire into the house. Then some of the E strangers went to stand at the front. (The accused's house had one door only). In that instant the accused came out and shot an arrow which hit one stranger in the buttock. He then ran away. She said she was also frightened and ran away with her children. Later she went over to the accused's house and saw blood on the inside of the door as F well as the floor. There was no-one around. I have declined to review the evidence of DW.1 because he claimed to have been with DW.2 when all

this happened, but DW.2 said she was alone with her children, adding that she could not lie. DW.1 was thus a false witness. He saw nothing of the incident. In short, the defence was self-defence.

I told the lady and gentlemen assessors who sat with me that their task was to decide G whether the accused's act amounted to unlawful wounding and whether he did what he did with intent to resist a lawful arrest. I directed them on the issue of self-defence and told them that it was not for the accused to prove that defence but for the prosecution to H disprove it. In the end, I told them, the accused was entitled to the benefit of the doubt. The assessors were almost unanimous except on the question of the stage at which the accused was shot in the leg. The first assessor, Mr. Raphael Matonya, was convinced that the accused's leg was shot in the bush following the chase. The second assessor, Mama Fatu Gwao, said she could not be definite on that point: it could have I been in the bush or it could have been at the accused's house. She said

that generally the prosecution case left doubts. The third assessor, Mr. Gaitani A Malecela, was definite that the accused's leg was shot at his house. However, all the assessors, in particular the first and the second, were convinced that this was a surprise attack. They were convinced that the askaris did not identify themselves or call upon the accused to surrender and were convinced that there was a firing of guns into the accused's house before the accused came out to wound PW.1. It was a show of B so-called power, they observed. They therefore found that the accused acted in self-defence. The third assessor was not so unequivocal. He said the accused must have been frightened at seeing strangers, perhaps thereby implying that the accused was taken by surprise. He nevertheless thought that the accused should not have wounded C PW.1 but should have surrendered. I benefited tremendously from the combined views of the assessors. The divergencies here and there to me indicate one thing, namely that the totality of the evidence left doubt in the assessors' minds.

There is no doubt, and it was admitted, that PW.1 was wounded. A double-ear arrow, D which was exhibited at the trial, was lobbed by the accused into PW.1's buttock. There was a great deal of bleeding as evidenced by the trousers of PW.1 which were similarly exhibited. It is said in the 40th Edition of Archbold para 2659, that "wound" includes incised wounds, punctured wounds, contused wounds, and gunshot wounds, E the relevant factor being the breaking of the continuity of the skin. That paragraph discusses section 18 of the English Offences Against the Person Act, 1861 which is not dissimilar to our section 222(1). There was such a breaking of the skin in this case and I am satisfied that there was wounding within the meaning of section 222(1) of the Penal Code. I reserve for the moment consideration of whether the wounding was also F unlawful as it is necessary first to determine whether the attempted arrest was itself lawful.

As stated at the beginning, the Police had received a complaint from one Kanyamala that the accused had threatened him with violence. A police case file was opened and the G askaris went off to arrest the accused. For reasons I do not know the prosecution were not keen to

summon Kanyamala to testify and he was never summoned. This led learned counsel for the defence Mr. Alimwike to remark that there was no ground upon which to believe that a complaint was ever made. It also led the first assessor to remark H that Kanyamala reported the accused out of malice. I sympathise with these sentiments but I am of a different view. First, I believe without hesitation that the complaint was made. I do not see how six askaris, led by a sergeant -major, could out of the blue decide to go and arrest a total stranger in a journey that took them about three hours by Land-Rover. It would of course have been beneficial had Kanyamala I been called to confirm making a complaint but I think, as a

matter of law, his evidence was not essential. I am entitled to believe the witnesses A where they deserve to be believed. I believe PW.1 and PW.2 that a report was made. On the other hand, the first assessor's predicament raises an interesting point. I think I am correct in saying that he also wanted to be satisfied that the accused was guilty of B threatening violence. By implication, it means that the accused had also to know that the arrest was lawful. I believe that the state of the law is different and I said so in my summing-up. I think, with respect, that in determining whether the arrest was lawful the court does not also have to be satisfied that the accused was guilty of some offence. To go that far would require the court to conduct a trial before the trial or a trial within the C trial. That cannot be the intention of the statute. In my opinion, where there is evidence that the police were acting as law enforcement officers, the court is entitled to assume that they were acting lawfully. In the same way, it does not occur to me that the accused has to know that the arrest is lawful. Perhaps all he has to know is the intention to arrest D him. In the words of Talfound, J. in R. v Bentley (1850), 4 Cox 406, at 408, with which I agree:

> ... to support a charge of resisting a lawful apprehension, it is enough that the prisoner is lawfully apprehended, and it is his determination to resist it. If the apprehension is in point of E fact lawful, we are not permitted to consider the question, whether or not he believed it to be so, because that would lead to infinite niceties of discrimination .... He is not to erect a tribunal in his own mind to decide whether he was legally arrested or not. F

I have found that the police pursued the accused upon a criminal complaint. They were duty bound to follow up that complaint. I am thus satisfied that the intended arrest was lawful.

We now come to the question whether the wounding was unlawful. In this connection it G is I think desirable first to ascertain the stage at which the accused was shot in the leg. The prosecution claimed that this took place in the bush after a chase; the accused said it was right at his house. I do not believe the accused and I join the first assessor in finding H that it took place in the bush. I find so even after taking into account the unreliable character of the two witnesses PW.2 and PW.3 who testified on this issue. I will elaborate. PW.2 was a police officer who was among the arresting team. It was demonstrated at the trial that he was capable of manufacturing evidence when it pleased him to do so. In his police statement exhibit D.1, he claimed that the accused prepared I himself for resistance and took up his bow and arrow just as the arresting team were

approaching. Yet he agreed in evidence that it was impossible to see inside the A accused's house from outside because the inside was dark. He even conceded that he could not be certain that the accused could see outside from inside the house. Secondly, he again stated in exhibit D1 that he witnessed the accused shoot the arrow. In evidence he stated that he was at the rear of the house and only heard PW.1 cry out that he had B been shot with an arrow. Thirdly, he stated in exhibit D1 that the firing of tear gas into the accused's house came after the accused had shot the arrow. In evidence he said the release of tear gas came before the shooting of the arrow. Fourthly, he claimed in exhibit D1 to have witnessed the shooting of the accused in the bush. In evidence he C stated that he only heard a gun shot and found the accused already apprehended. Finally, he claimed in exhibit D1 that from the dispensary they passed at the accused's D house and there found that the accused's mother had completely shifted from the village. There was indeed some woman seen by the arresting team some distance from the accused's house just as they approached, and she was said to be the accused's mother. But how this witness knew that the woman had suddenly shifted from the village beats my imagination. It would be dangerous to believe much of such a willing and unintelligent liar and I do not propose to do so. There was then PW3, a civilian and resident of the E accused's village. He was washing at a water point somewhere at the village when he heard gun shots. He was seized with fear and took cover at a baobab tree. Moments later, he looked up and saw a crowd of askaris and villagers chasing the accused. He decided to join in the chase. He claimed that he was so fast that he soon overtook everybody including the police Land-Rover which had also joined the chase. It became F a race between him and the accused, the rest of the crowd falling far behind. Eventually the Land-Rover came around and he indicated to the occupants the direction taken by the accused. He said an askari in the Land-Rover then ordered the accused to stop but the latter accelerated his run. Thereupon the askari aimed his gun through the G window and shot the accused in the leg. He collapsed on the spot just thirty five paces from where the (PW3) was.

The witness thus claimed to have been the only civilian who witnessed that shooting. The askari who did the shooting somehow failed to come and testify. As can be seen, H and so I observed, PW.3 was given to exaggeration and not a little self-glorification. He appeared immensely to enjoy his role in the witness box even to the extent of making himself a nuisance. He would dispute uttering words he had just uttered and generally showed a want of maturity. He was a youth of about 22 years of age. Mr. Alimwike I characterised him as a hooligan. I cannot be certain of that

but he definitely attracted not much confidence from the court. In the end, I can accept A the theme of his evidence only because there was corroboration.

There was evidence from PW.4, another villager, that when he heard gunshots he looked out of his house and saw people chasing the accused. He followed. In doing so, B he came upon

PW.1 who had an arrow sticking out of his buttock, the rest of the crowd having gone ahead of him. He told PW.1 to stop and removed the arrow. He told the court that the arrow was poisoned and was amazed to learn that PW1 survived. He opened his mouth in disbelief upon seeing him in court. I accept the evidence of this C witness that the accused was chased beyond the environs of his house. I therefore reject the accused's claim that he collapsed just sixteen paces from his house. But the claim of the accused is useful in one way: it means he could not run any distance after the shot in the leg. The court saw the scar on the thigh and it did not speak of a minor D injury. Indeed the accused stated that he passed out after collapsing. It is then clear that he could not have run anywhere after being shot. But he ran. It is for these reasons that I hold the view that he was not shot at his house.

However, there were events at the accused's house of which I have not lost sight. The accused testified that bullets were fired into his house, without warning and by people he E could not see. It was indeed in the evidence of PW1 and PW2 that they approached the accused's house surreptitiously from the rear. To that end, they left their vehicle a good distance away and skirted around the village, avoiding to be seen by villagers. They did not associate any villager in this operation. Undoubtedly, therefore, they were F anxious to take the accused by surprise. Perhaps that was necessary, having regard to the accused's reportedly dangerous character. The crucial issue is what happened after they had arrived there. The accused said he was greeted with gunshots into his house. This was corroborated by DW.2. Her house was mere fifty paces or so from the accused's and she said she saw them arrive and immediately open fire into the G accused's house. She did to testify on any warning or call to surrender as claimed by PW1 and PW 2. Of course these witnesses also claimed that tear gas only was fired into the accused's house. There is a doubt. I am not at ease in my conscience. I am bound to give the accused the benefit of that doubt. The prosecution case would have H stood on firmer ground if there had been independent witnesses - but they were deliberately avoided - instead of relying on PW2, whom I have already discredited, or PW1, who was not a disinterested witness. I cannot state with certainty that guns were or were not fired into the accused's house, and with or without warning; I am thus bound I to give

the accused the benefit of the doubt and say that his story could possibly be true. A

In law every person is entitled to defend himself and his property against unwarranted attack so long as he uses no more than reasonable force. In my judgment, even where a lawful arrest is to be executed, if it is executed in a manner and with such force that is not justified by the occasion, the prisoner would be entitled to answer force with force. In B the instant case, I am unable to say that the police officer did not conduct themselves excessively and want only at the accused's house. After giving the accused the benefit of the doubt, and even though he was not wounded at his house, I agree with the assessors C that he might have acted in self-defence. And since he used an arrow to answer the might of a gun, it cannot be said that he exceeded himself in doing what he did. It has thus not been established that the wounding of PW.1 was unlawful.

For these reasons, I find the accused not guilty and acquit him accordingly. He should be set at liberty unless further lawfully held. D

Accused not guilty.

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E

[zRPz]REPUBLIC v MICHAEL CHIBING'ATI 1983 TLR 441 (HC)

Court High Court of Tanzania - Dodoma
Judge Lugakingira J

November 21, 1983

CRIMINAL CASE 452 OF 1982 F

Flynote

Criminal Law - Provocation - Effect of intoxication.

Criminal Law - Intoxication - Whether drunkenness may occasion a mistaken belief that a person is entitled to exercise the right of self defence. G

-Headnote

At or about 8 p.m. on 18th September 1981 the accused Michael Chibing'ati returned to his home at Veyula village, in Dodoma Urban District drunk. He found his mother Merina and his three brothers in the house of one of his brother's. The mother had gone H there to summon the three to her hut to eat. The accused somehow conceived this gathering as one aimed at criticizing him. His mother assured him that there was nothing of the sort and that she was there to invite his brothers to eat. The accused was unsatisfied. He pursued his mother to her hut where he pounced on her in an attempt to I throttle her. The other brothers came to their mother's

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LUGAKINGIRA J

help. They wrenched him from his mother and one (the deceased) slapped him as he A was led away to his hut. The accused rushed to his hut, came out with a bill-hook (hengo) and cut the right arm of one brother (Jackson) and the neck of another (Yonas) who fell and died instantly. He threw down the weapon and went into hiding. Later he re-emerged at the mortuary to see the body of his dead brother where he was arrested B and charged with murder.

The accused gave an unsworn statement and pleaded intoxication but also alluded to self defence. The defence of provocation was not raised but the trial Judge explained to the assessors circumstances under which it could be available. C

Held: (i) In the instant case there was undisputed evidence that the accused was violently wrenched from his mother and slapped but these were not wrongful acts since the accused was engaged in a criminal and murderous act of throttling his mother, in which case provocation could not arise; D

(ii) in the instant case the accused claimed to have got drunk after drinking Kangara brewed out of honey from 1 p.m. until night and there was sufficient corroborative evidence which enabled the court to find without hesitation that the accused was drunk at the time though he was not insane in the legal sense; E

(iii) considering his degree of intoxication, the accused had reasonable ground to believe that his brothers were about to attack him and or his family, a belief which entitled him to rely on the defence of self-defence based on mistake of fact;

(iv) (obiter) information on place of crime should, particularly where the offence F is committed in rural or peri-urban area, give such particulars, for instance the village as would obviate uncertainty;

(v) (obiter) opinion evidence given by an unqualified person as to the cause of death is bound to be seriously doubted and even rejected unless it is corroborated by other evidence. G

Case Information

Accused guilty of manslaughter.

Cases referred to:

1. R. v Katani Kabwika [1945] 12 E.A.C.A. 182. H
2. R. v Richard Hiyari [1971] H.C.D. 458.
3. R. v Nyode Wopera [1948] 15 E.A.C.A. 145.
4. Leosoni Matheo v R. [1961] E.A. 364.
5. R. v Gamlen IF and F 90 [England].
6. R. v Loibori Tekindikoki [1949] 16 E.A.C.A. 86. I
7. R. v Billa Lohoyo [1947] 15 E.A.C.A. 137.

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LUGAKINGIRA J

V. Lyimo for the prosecution.

G. Alimwike (for D.C. Mbezi) for the accused. A

[zJDz]Judgment

Lugakingira, J.: The accused, Michael Chibing'ati was charged with murder c/s 196 of the Penal Code, it being alleged that on 18th September, 1981, in Dodoma region, he B murdered one Yonas Chibing'ati. The accused and the deceased were brothers, resident at Veyula village in Dodoma urban district. They had two other brothers, Jackson and Rogan, and all of them resided in the same homestead along with their mother Marina and the accused's wife Edna.

The facts of the case were simple, there being no dispute about the death of Yonas or C the fact that he was killed by the accused. It is the circumstances of the homicide that are of major interest in this case. Merina used to cook for the deceased and Rogan who were still bachelors and for Jackson whose wife was away at the material time. On the evening of 18th September, 1981 Marina cooked as usual and around 8 p.m. she D proceeded to Jackson's house to invite him, Rogan and the deceased to eat. The accused had been out in the village and arrived home just before or as Merina was in the course of inviting the above three. Somehow it got into the accused's head that something was some backbiting was going on. He therefore remarked: "Kwa nini mnaniteta?" (according to Merina) or "Kwa nini mmejazana ndani mnaniteta?" E

(according Jackson). His mother replied that no one was backbiting him but she was inviting his brothers to eat. Having said so, Merina returned to her house.

It seems that the accused's fear was not assuaged. When Merina headed to her house, he followed her. Shortly, she was heard crying out for help. Rogan rushed to the scene F and found the accused to have thrown her on the bed and was throttling her. He intervened, tore off the accused from her and pulled or pushed him outside. Jackson and the deceased arrived at that juncture. They assisted Rogan to force the accused back to his house. The deceased was nevertheless very incensed by the accused's disgraceful G conduct. While the accused was being led to his house - a matter of ten paces from Merina's house - the deceased aimed two slaps at the accused. But the deceased was a blind man, hence only one slap found the right target and the second landed on Rogan's shoulder. Meanwhile, the accused rushed into his house. Jackson sensed that there H might be further trouble and advanced towards the accused's door with a view to shutting him inside. He had not reached the door when the accused came out with a bill-hook (hengo) and cut him on the right arm. As Jackson retreated the accused swung another blow and cut the deceased on the right side of the neck. The deceased fell and I died almost instantly. Meanwhile the accused dropped the weapon at the scene and

ran off to hide. He returned later in the night after the police had arrived and taken the A body away. Next day he was handed over to the police and subsequently charged with this offence.

The accused gave an unsworn statement and pleaded intoxication. He said that he drank a honey brew at one Shauri's from 1 p.m. until night and got drunk. He claimed B not to have known what was happening after that. He therefore vaguely recalled having returned home, entering his house and to feeling like vomiting. He then thought he got out for fresh air and proceeded to his mother's house to see her as she had not been feeling well and he had not seen her for the whole day. But while in his mother's house, C his brothers rushed in and started attacking him. He then remembered rushing back to his house for safety but before he could shut his door he saw his brothers advancing. He feared that if they entered there would be trouble and his children would be harmed. Almost instinctively he picked up his bill-hook and rushed out to meet his brothers there. D The next thing he knew he had cut the deceased. He does not seem to have been aware that he also cut Jackson. The rest of the story was about his hiding, re-emergence and arrest which is not essential at this stage.

It is clear from the foregoing that Yonas Chibing'ati is dead. It is equally clear that he E was killed by the accused. The postmortem report which was tendered by the prosecuting counsel in the absence of the medical witness gave cause of death as a rupture of the medulla at the cervical vertebrae from a deep wound on the right side of the neck. This agrees with the evidence of Rogan and Edna who witnessed the cutting; it F also agrees with the version of the accused although he does not himself seem to know where the blow landed. I therefore accept the cause of death as stated in the postmortem report.

I directed the gentlemen assessors who sat with me that the evidence as a whole pointed G to three defences: provocation, intoxication and/or self defence under a mistake of fact. The assessors were satisfied that the accused had consumed alcohol, but they were not satisfied that he was so drunk as to be incapable of forming the intention to kill or cause grievous harm. They were of the view that the killing was intentional. They did not deal with the issue of self-defence, perhaps because the concept of a mistake of fact H did not perfectly register in their minds. I will now turn to consider the defences suggested above.

Provocation was not put forward by the defence, no doubt for obvious reasons, but I felt bound to leave it to the assessors. It is defined as wrongful act or insult of such a nature which, when offered to an ordinary person, is likely to deprive him of the power I of self-control and to induce him to commit an assault of the kind which the person charged committed.

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LUGAKINGIRA J

But according to the provision of the third paragraph of s. 202 of the Penal Code, a A lawful act is not provocation to any person for an assault. Provocation must therefore be legal. It must proceed from a wrongful act or insult and must be such as would deprive an ordinary person the power of self-control and induce him to commit an assault of the kind the person charged committed. In the instant case there was undisputed evidence B that the accused was violently wrenched from his mother and slapped as he was being led away and I am prepared to find, generally, that he could not have been kindly treated by his infuriated brothers. Assuming for a moment that these actions were wrongful, were they of the kind that were likely to deprive an ordinary person in the accused's C community the power of self-control and to induce him to commit the kind of assault as was committed by the accused? I do not think so. These were minor incidents, so minor that even the accused himself could not state how he was attacked. In R. v Katani Kabwika [1945], 12 EACA 102, the deceased unlawfully slapped the appellant's face D twice, whereupon the appellant stabbed the deceased in the back with a knife with great force from which the deceased died. The appellant was convicted of murder and appealed. The appeal was dismissed in the absence of evidence that the two slaps the appellant received could deprive an ordinary person of the power of self-control and E induce him to commit the assault the appellant did. I am bound by that decision; it is also commonsensical. I am therefore of the view that the handling and slapping the accused received at the hands of his brothers could not induce an ordinary person of the accused's community to commit the kind of assault that the accused committed. More pertinently, I do not actually find that the assault on the accused was wrongful. He was F engaged in a criminal and murderous act of throttling his mother and this, in my view, justified the intervention of his brothers to save the poor woman. Theirs was therefore a lawful act and this could not give rise to legal provocation. All in all, I hold that provocation does not avail itself to the accused. G

Coming to intoxication, it has to be stated generally that this does not constitute a defence to any criminal charge. In a murder charge, intoxication would serve as a defence in three circumstances, namely, where the person charged did not at the time of H the act or omission complained of know what he was doing and the state of intoxication was caused without his

consent by the malicious or negligent act of another person; where such person is by reason of intoxication insane, temporarily or otherwise; or where it cannot be established that such person had the capacity to form the intention I to kill or cause grievous harm. In the words of Onyiuke, J. In R. v Richard Hiyari [1971] HCD n. 458:

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Intoxication takes various forms. It may lead to total incapacity amounting to temporary A insanity or it may create a condition which induces extraordinary violence and in this connection it may become relevant in determining whether a person in such a condition is capable of forming a specific intention .... B

In the instant case the accused stated that he drank "kangara" brewed out of honey from 1 p.m. until night, i.e. about 8 p.m. He claimed to have got drunk. There was also evidence from Rogan that he smelled pombe on the accused when he was grappling with him. There was similarly evidence from the accused's wife Edna that when the accused C arrived, he first entered his house, went to lie on his bed and vomited. She said that he appeared drunk. Jackson was not in a position to determine the accused's state, for he was himself confessedly drunk. It was finally agreed by all the family witnesses that the actions of the accused on that evening were extraordinary. Never before had he D behaved in like manner. In considering these factors I have no hesitation in finding that the accused was drunk at the time. I do so even though in his extra-judicial statement he made no mention of alcohol. Nevertheless, I do not find that he had become insane in the legal sense, and I do not have to dwell on this aspect, but I think that it is doubtful E that he had formed the intention to kill his blind brother or cause him grievous harm. It was held in R. v Nyode Wopera (1948), 15 EACA 145 that while under s. 14 of the Penal Code intoxication is to be taken into account in deciding whether the person charged had formed a murderous intention, it is not the only fact which should be F considered. In that case, therefore, the Court of Appeal considered also the absence of any previous quarrel between the deceased and the appellant, the aimless way in which the stabbing of the deceased was done, the lack of any provocation, the fact that a single wound who inflicted on a part of the body not usually regarded as vulnerable and the G general conduct of the appellant, including his curious fit of snorting and grunting immediately after he had inflicted the injury. After considering these factors and the appellant's consumption of alcohol the Court quashed the conviction for murder and substituted a conviction for manslaughter. H

The facts of the case before us do not show any previous ill-will between the deceased and the accused. In fact such ill-will was denied by the witnesses. It is also apparent that the entire incident - from the time the accused started attacking his mother to the time he cut the deceased - did not last long. It was a rapid succession of events which does not appear to me to have lasted more than three to four minutes. There was I therefore no time for meditation. Further, the accused inflicted

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a single wound and does not himself seem to know where it was inflicted. He also did A not realise the fatality of his action for it shocked him to learn that he had killed his brother. He therefore told the justice of the peace: "... nikaambiwa kuwa nimeua, moyo wangu ukasituka, nikakimbia ...". He even dropped his weapon at the scene and later surrendered himself that same night. And according to Inspector Tryphon B Mwaya the accused was actually found and arrested at the hospital mortuary where he had presumably gone to see his brother's body. The onus is on the prosecution to prove beyond reasonable doubt an intention to kill or cause grievous harm. I think that in the light of the factors, that burden was not discharged. It seems to me, and I find, that the C accused killed out of drunkenness without an intention to do so and cannot be guilty of murder.

The foregoing is sufficient to dispose of the case but I think that self-defence is a matter which also deserves consideration. Both in the extra-judicial statement and in his statement in court the accused alluded to self-defence or defence of his family. He D believed that he was about to be a victim of an attack by his brothers inside his house. It may be asked whether he had reasonable grounds for believing so. It will now be recalled that Jackson advanced towards the accused's door with the intention of shutting it from outside. The deceased and Rogan were at Jackson's heels. There was no E evidence that the accused knew that the intention of his brothers was to shut the door and the circumstances, I think, militated against such imagination. Only seconds before his brothers had been chastising him and according to Rogan the deceased was expressing the desire to punish him more even as the accused entered his house. In F those circumstances and in view of the alcoholic impairment, I think the accused genuinely and reasonably believed, albeit mistakenly, that his brothers were advancing to attack him. In Leosoni Matheo v R. [1962] E.A. 264 the Court of Appeal was considering provocation in relation to mistake of fact and held that an accused acting under a reasonable mistake of fact, when that mistake, if true, would lead to the G application of s. 201 of the Penal Code, is entitled to rely on that mistake. It is also stated in Archbold 40th Ed. para. 144 g. (vi), citing R. v Gamlen IF & F. 90, that drunkenness and consequent delusions may in some circumstances assist to make out a defence of self defence based on a mistake of fact. I have just stated that the accused H had reasonable grounds for his belief. I will now state that if his belief were in fact true, if his brothers had entered his house and attacked him, that would have invited the application of section 18 of the Penal Code even though it was the accused's own initial conduct that had ignited their fury. He is therefore entitled to rely on the mistake, in I which case, again, the homicide cannot be murder but manslaughter.

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Before concluding this judgment I think it is necessary to comment on two matters. I A have noted, in the first instance, that the information filed in this court gave the place of crime merely as Dodoma Region. That is vague, Dodoma region being a vast territorial area. The mention of it cannot in any mind indicate with any clearness the place where the offence was committed. It is noted that the specimen forms set out in the Second B Schedule to the Criminal Procedure Code require no more than stating the region and it may well be that it is

these forms which were relied on. But as observed by the Court of Appeal in K. v Loibori Tekindikoki [1949], 16 EACA 86, it is doubtful if the specimen forms themselves comply sufficiently with the requirements of the provisions of ss. 135 C and 138 (f) of the Code. The Court stated that it can hardly be said that a reference to what may be a vast territorial area can indicate to the accused, with reasonable clearness, the place at which it is alleged he committed the offence. I think, therefore, that the information should, particularly where the offence is committed in a rural or peri-urban area, give such particulars, for instance the village, as would obviate D uncertainty. In this case such particulars were in fact available and contained in the police charge sheet filed in the committing court. One cannot then explain the brevity of the information filed in this court except, probably, on cosmetic grounds. I am nevertheless satisfied that the omission in this case did not embarrass the accused, there E being no dispute about the facts.

Secondly, it was also noted that the person who conducted the postmortem at Dodoma Government Hospital, one Maria Galatto, is designated a medical assistant. Counsel for the Republic Mr. Lyimo was not in a position to confirm that she was not such a medical F assistant. However, the position is far from clear, for it seems that there have been inconsistencies in stating the status of Maria Galatto. In Criminal Sessions Case No. 38/83, the plea in which I took on 7th of this month, the same person is there designated as a medical officer. One prefers that she is in fact a medical officer for the opinion given G by an unqualified person as to the cause of death is bound to be seriously doubted and even rejected unless it is corroborated by other evidence. In this regard, I should perhaps set out the unequivocal warning sounded by the Court of Appeal in R. v Billa Luhoyo [1947], 14 EACA 137 where an unqualified hospital assistant was involved. The Court said: H

> We note that in this case, as in some other cases which have come before this Court from Tanganyika, opinion evidence as to the cause of death was taken from a person who was not a qualified medical officer. We appreciate the conditions and circumstances which bring it I about that it is often the case that no better evidence can be

> obtained than that of a hospital assistant with some medical knowledge, but we think it right to A utter the warning that where in a case there is other evidence not tending to corroborate the cause of death testified to by such a witness, this court would not accept an opinion given by an unqualified hospital assistant, as that of a medical expert witness as establishing cause of death. B

Fortunately, I do not have to tax myself beyond this as there was other evidence, including the accused's own statements, which leave no doubt that the deceased died following a cut wound on the neck. I can only remark that if Maria Galatto was in fact a medical assistant, that is definitely curious since the Dodoma Government Hospital could C not in 1981 have been wanting in Medical officers.

To revert to the substance of the case, I have held that the accused could not have formed the intention to kill or cause grievous harm. I have also held that the circumstances of the killing permitted the defence of self-defence based on a mistake of D fact. It follows that the accused

is not guilty of murder and he is acquitted of that offence. However, I find him guilty of manslaughter c/s 195 of the Penal Code and convict him of that offence. Sentence: On the facts of the case, it being established that accused permitted himself to be a slave of alcohol, but considering also his youth and his E apparent remorse at what happened, I sentence him to go to prison for three (3) years.

F Order accordingly.

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G

[zRPz]REPUBLIC v IDD HAMISI 1983 TLR 449 (HC)

Court High Court of Tanzania - Dodoma
Judge Maina J

April 25, 1983
CRIMINAL REVISION 6 OF 1983
Flynote
Road Traffic Act - Definition of motor vehicle - Whether a bicycle is a motor vehicle or trailer H for purposes of offences under s. 39 1(a) of the Road Traffic Act, No. 30 of 1973.
Road Traffic Act - Bicycles - Whether riding a defective bicycle is an offence known to law.
-Headnote
The accused Iddi Hamisi was charged and convicted on his own plea of riding a I defective pedal bicycle on a road contrary to sections 39(1)(a),

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MAINA J

100 and 113(1) of the Road Traffic Act, 1973. The accused was riding a pedal bicycle A without hand brakes. He was convicted and sentenced to pay a fine of shillings 100/=. The case came for revision at the High Court.

Held: (i) S. 39(1)(a) of the Road Traffic Act, 1973 prohibits the driving of defective B motor vehicles or trailers on public roads;

(ii) s. 2 of the Act defines a motor vehicle as a self-propelled vehicle intended or adopted for use on roads and includes an engineering plant;

(iii) a bicycle is neither a self-propelled vehicle to be categorised as a motor C vehicle nor is it a vehicle designed to be drawn or propelled by a motor vehicle to be called a trailer, therefore, s. 39(1)(a) of the Road Traffic Act which prohibits the driving of defective motor vehicles on public roads does not apply to bicycles;

(iv) the accused should have been charged under rule 32 of the Road Traffic D Rules and not under section 39(1)(a) of the Road Traffic Act.

Case Information
Order accordingly.
No case referred to. E

[zJDz]Judgment

Maina, J.: Iddi Hamisi, the accused in this case, was convicted on his own plea of guilty on a charge of "riding a pedal bicycle with mechanical defects". He was sentenced to fine Shs. 100/= which he paid. F

The accused was charged under section 39(1)(a) of the Road Traffic Act, No. 30 of 1973 which provides that no motor vehicle or trailer shall be driven on the public road unless all parts and its equipment including its chassis engine, gear system, brake system body work, tyres, lights are in good repair and in efficient working condition. The G bicycle which the accused was riding "had no hand brake". The issue here is whether by riding a bicycle which had no handbrake the accused had committed an offence under section 39(1)(a) of the Road Traffic Act. As I have tried to show above, that section clearly provides that it shall be an offence when a person drives a motor vehicle or trailer H with mechanical defects. A motor vehicle is defined by section 2 of the Act to mean any self-propelled vehicle intended or adapted for use on the roads and includes an engineering plant. Surely a bicycle is not a self-propelled vehicle. Section 2 of the Act defines a bicycle as any vehicle which has at least two wheels which is propelled by I means of pedals or hand cranks solely by the muscular energy of the person riding it. Clearly

therefore a bicycle is not a motor vehicle. It is also not a trailer because by its definition A in the Act a trailer is "any vehicle designed to be drawn or propelled by a motor vehicle". From the foregoing it will be clear that a bicycle is neither a motor vehicle nor a trailer. Therefore section 39(1)(a) of the Road Traffic Act which provides that no motor vehicle or trailer shall be driven on a public road with defects does not apply to bicycles. B

The remaining question now is whether by riding a pedal bicycle without brakes the accused has committed any offence known to law. I have read the Road Traffic Act very carefully but I have not seen any provision in the Act about riding a bicycle with defects. However, the Traffic Rules made under the Traffic Ordinance provide in rule C 32 that "Every bicycle or tricycle shall be fitted with at least one effective brake". The Traffic Ordinance, Cap. 168, was repealed by section 117(1) of the Road Traffic Act, but section 117(2)(a) of the Act provides that notwithstanding the provisions of Sub-Section (1), all subsidiary legislation made under the Traffic Ordinance and in force immediately before the commencement of the Road Traffic Act, shall continue to be in D force until revoked. The rules made under the Traffic Ordinance and which have not been revoked are therefore in force. Rule 32 of the Traffic Rules which were made under the Traffic Ordinance has not been revoked. The accused should have been charged under that rule and not under Section 39(1)(a) of the road Traffic Act. E

The accused's conviction is altered to riding a bicycle without brakes contrary to rule 32 of the Traffic Rules. The sentence remains as it appears to be reasonable.

F Order accordingly.